SUPPLEMENT NO. 94
VOLUMES 1 AND 2
December 2025

MUNICIPAL CODE

City of

EL PASO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 019783, enacted August 19, 2025.

See the Code Comparative Table and Disposition List—Volume 2 for further information.

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November 2024

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City of

EL PASO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 019675, enacted September 24, 2024.

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MUNICIPAL CODE

City of

EL PASO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 019548, enacted October 10, 2023.

See the Code Comparative Table and Disposition List—Volume 2 for further information.

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Ordinance No. 19386, passed September 27, 2022.

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February 2022

MUNICIPAL CODE

City of

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 19238, passed September 28, 2021.

See the Code Comparative Table and Disposition List—Volume 2 for further information.

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 19105, passed September 29, 2020.

See the Code Comparative Table and Disposition List—Volume 2 for further information.

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 18984, passed September 17, 2019.

See the Code Comparative Table and Disposition List—Volume 2 for further information.

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 18842, passed September 4, 2018.

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 18731, passed September 19, 2017.

See the Code Comparative Table and Disposition List—Volume 2 for further information.

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November 2016

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This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 18545, passed July 26, 2016.

See the Code Comparative Table and Disposition List—Volume 2 for further information.

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VOLUMES 1 AND 2
October 2015

MUNICIPAL CODE

City of

EL PASO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 18409, passed August 25, 2015.

See the Code Comparative Table and Disposition List—Volume 2 for further information.

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SUPPLEMENT NO. 83
VOLUMES 1 AND 2
October 2014

MUNICIPAL CODE

City of

EL PASO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 18241, passed September 9, 2014.

See the Code Comparative Table and Disposition List—Volume 2 for further information.

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SUPPLEMENT NO. 82
VOLUMES I AND II
November 2013

MUNICIPAL CODE

City of

EL PASO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 18090, passed October 29, 2013.

See the Code Comparative Table and Disposition List—Volume II for further information.

Included in the Charter is:

Ordinance No. 17977, approved March 26, 2013, Election of My 11, 2013

See the Charter Comparative Table for further information.

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SUPPLEMENT NO. 81
VOLUMES I AND II
December 2012

MUNICIPAL CODE

City of

EL PASO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 17886, passed October 9, 2012.

See the Code Comparative Table and Disposition List—Volume II for further information.

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SUPPLEMENT NO. 80
VOLUMES I AND II
December 2011

MUNICIPAL CODE

City of

EL PASO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 17650, approved September 27, 2011.

See the Code Comparative Table and Disposition List—Volume II for further information.

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SUPPLEMENT NO. 79
VOLUMES I AND II
December 2010

MUNICIPAL CODE

City of

EL PASO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 17424, approved September 21, 2010.

See the Code Comparative Table and Disposition List—Volume II for further information.

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SUPPLEMENT NO. 78
VOLUMES I AND II
June 2010

MUNICIPAL CODE

City of

EL PASO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 17334, approved May 25, 2010.

See the Code Comparative Table and Disposition List—Volume II for further information.

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SUPPLEMENT NO. 77
VOLUMES I AND II
March 2010

MUNICIPAL CODE

City of

EL PASO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 17272, approved January 26, 2010.

See the Code Comparative Table and Disposition List—Volume II for further information.

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SUPPLEMENT NO. 76
VOLUMES I AND II
November 2009

MUNICIPAL CODE

City of

EL PASO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 17224, approved October 27, 2009.

See the Code Comparative Table and Disposition List—Volume II for further information.

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SUPPLEMENT NO. 75
VOLUMES I AND II
August 2009

MUNICIPAL CODE

City of

EL PASO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 17154, approved July 28, 2009.

See the Code Comparative Table and Disposition List—Volume II for further information.

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SUPPLEMENT NO. 74
VOLUMES I AND II
May 2009

MUNICIPAL CODE

City of

EL PASO, TEXAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 17112, approved April 21, 2009.

See the Code Comparative Table and Disposition List—Volume II for further information.

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EL PASO, TEXAS

MUNICIPAL CODE

A Codification of the General Ordinances of El Paso, Texas

Beginning with Supp. No. 73,
Supplemented by Municipal Code Corporation

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PREFACE

The El Paso, Texas City Code, originally published by Book Publishing Company in 1986, has been kept current by regular supplementation by Municipal Code Corporation, its successor in interest.

During original codification, the ordinances were compiled, edited and indexed by the editorial staff of Book Publishing Company under the direction of Charlie McNabb, first assistant city attorney.

The code is organized by subject matter under an expandable three-factor decimal numbering system which is designed to facilitate supplementation without disturbing the numbering of existing provisions. Each section number designates, in sequence, the numbers of the Title, chapter, and section. Thus, Section 2.12.040 is Section .040, located in Chapter 2.12 of Title 2. In most instances, sections are numbered by tens (.010, .020, .030, etc.), leaving nine vacant positions between original sections to accommodate future provisions. Similarly, chapters and titles are numbered to provide for internal expansion.

In parentheses following each section is a legislative history identifying the specific sources for the provisions of that section. This legislative history is complemented by an ordinance disposition table, following the text of the code, listing by number all ordinances, their subjects, and where they appear in the codification; and beginning with Supplement No. 73, legislation can be tracked using the "Code Comparative Table and Disposition List."

A subject-matter index, with complete cross-referencing, locates specific code provisions by individual section numbers.

This Supplement brings the Code up-to-date through Ordinance No. 019783, passed August 19, 2025.

Municipal Code Corporation
1700 Capital Circle SW
Tallahassee, FL 32310
800-262-2633

HOW TO USE YOUR CODE

This code is organized to make the laws of the city as accessible as possible to city officials, city employees and private citizens. Please take a moment to familiarize yourself with some of the important elements of this code.

Numbering System.

The numbering system is the backbone of a Code of Ordinances; Municipal Code Corporation uses a unique and versatile numbering structure that allows for easy expansion and amendment of this Code. It is based on three tiers, beginning with title, then chapter, and ending with section. Each part is represented in the code section number. For example, Section 2.04.010 is Section .010, in Chapter 2.04 of Title 2.

Title.

A title is a broad category under which ordinances on a related subject are compiled. This code contains about 15 to 20 titles. For example, the first title is Title 1, General Provisions, which may contain ordinances about the general penalty, code adoption and definitions. The titles in this code are separated by tabbed divider pages for quick reference. Some titles are **Reserved** for later use.

Chapter.

Chapters deal with more specific subjects, and are often derived from one ordinance. All of the chapters on a related subject are grouped in one title. The chapters are numbered so that new chapters which should logically be placed near certain existing chapters can be added at a later time without renumbering existing material. For example, Chapter 2.06, City Manager, can be added between 2.04, City Council, and Chapter 2.08, City Attorney.

Section.

Each section of the code contains substantive ordinance material. The sections are numbered by "tens" to allow for expansion of the code without renumbering.

Tables of Contents.

There are many tables of contents in this code to assist in locating specific information. At the beginning of the code is the main table of contents listing each title. In addition, each title and chapter has its own table of contents listing the chapters and sections, respectively.

Ordinance History Note.

At the end of each code section, you will find an "ordinance history note," which lists the underlying ordinances for that section. The ordinances are listed by number, section (if applicable) and year. (Example: (Ord. 272 § 1, 1992).)

Beginning with Supplement No. 73 a secondary ordinance history note will be appended to affected sections. Ordinance history notes will be amended with the most recent ordinance added to the end. These history notes can be cross referenced to the code comparative table and disposition list appearing at the back of the volume preceding the index.

Statutory References.

The statutory references direct the code user to those portions of the state statutes that are applicable to the laws of the municipality. As the statutes are revised, these references will be updated.

Cross-Reference Table.

When a code is based on an earlier codification, the cross-reference table will help users find older or "prior" code references in the new code. The cross-reference table is located near the end of the code, under the tabbed divider "Tables." This table lists the prior code section in the column labeled "Prior Code Section" and the new code section in the column labeled "Herein."

As of Supplement No. 73, this table will no longer be updated.

Ordinance List and Disposition Table.

To find a specific ordinance in the code, turn to the section called "Tables" for the Ordinance List and Disposition Table. This very useful table tells you the status of every ordinance reviewed for

inclusion in the code. The table is organized by ordinance number and provides a brief description and the disposition of the ordinance. If the ordinance is codified, the chapter (or chapters) will be indicated. (Example: (2.04, 6.12, 9.04).) If the ordinance is of a temporary nature or deals with subjects not normally codified, such as budgets, taxes, annexations or rezones, the disposition will be "(Special)." If the ordinance is for some reason omitted from the code, usually at the direction of the municipality, the disposition will be "(Not codified)." Other dispositions sometimes used are "(Tabled)," "(Pending)," "(Number Not Used)" or "(Missing)."

Beginning with Supplement No. 73 this table will be replaced with the "Code Comparative Table and Disposition List."

Code Comparative Table and Disposition List.

Beginning with Supplement No. 73, a Code Comparative Table and Disposition List has been added for use in tracking legislative history. Located in the back of this volume, this table is a chronological listing of each ordinance considered for codification. The Code Comparative Table and Disposition List specifies the ordinance number, adoption date, description of the ordinance and the disposition within the code of each ordinance. By use of the Code Comparative Table and Disposition List, the reader can locate any section of the code as supplemented, and any subsequent ordinance included herein.

Index.

If you are not certain where to look for a particular subject in this code, start with the index. This is an alphabetical multi-tier subject index which uses section numbers as the reference, and cross-references where necessary. Look for the main heading of the subject you need, then the appropriate subheadings:

BUSINESS LICENSE

See also BUSINESS TAX
Fee 5.04.030
Required when 5.04.010

The index will be updated as necessary when the code text is amended.

Insertion Guide.

Each supplement to the new code will be accompanied by an Insertion Guide. This guide will tell the code user the date of the most recent supplement and the last ordinance contained in that supplement. It will then list the pages that must be pulled from the code and the new pages that must be inserted. Following these instructions carefully will assure that the code is kept accurate and current. Removed pages should be kept for future reference.

Page Numbers.

When originally published, this code was numbered with consecutive page numbers. As it is amended, new material may require the insertion of new pages that are numbered with hyphens. (Example: 31, 32, 32-1.) Backs of pages that are blank (in codes that are printed double-sided) are left unnumbered but the number is "reserved" for later use.

Electronic Submission.

In the interests of accuracy and speed, we encourage you to submit your ordinances electronically if at all possible. We can accept most any file format, including Word, WordPerfect or text files. If you have a choice, we prefer Word, any version. You can send files to us as an e-mail attachment, by FTP, on a diskette or CD-ROM. Electronic files enable us not only to get you your code more quickly but also ensure that it is error-free. Our e-mail address is: **ords@municode.com**.

For hard copy, send two copies of all ordinances passed to:

Municipal Code Corporation
P.O. Box 2235
Tallahassee, FL 32316

Customer Service.

If you have any questions about this code or our services, please contact Municipal Code Corporation at 1-800-262-2633 or:

Municipal Code Corporation
1700 Capital Circle SW
Tallahassee, FL 32310

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Title 7	**Animals**
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SUPPLEMENT HISTORY TABLE

The table below allows users of this Code to quickly and accurately determine what ordinances have been considered for codification in each supplement. Ordinances that are of a general and permanent nature are codified in the Code and are considered "Included." Ordinances that are not of a general and permanent nature are not codified in the Code and are considered "Omitted."

In addition, by adding to this table with each supplement, users of this Code of Ordinances will be able to gain a more complete picture of the Code's historical evolution.

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
17273	2- 9-2010	Omitted	80
17274	2- 9-2010	Omitted	80
17275	2-16-2010	Omitted	80
17276	2-16-2010	Included	80
17277	2-16-2010	Omitted	80
17278	2-23-2010	Omitted	80
17279	2-23-2010	Omitted	80
17280	2-23-2010	Omitted	80
17281	2-23-2010	Omitted	80
17282	3- 2-2010	Omitted	80
17283	3- 9-2010	Omitted	80
17284	3- 9-2010	Omitted	80
17285	3- 9-2010	Omitted	80
17286	3- 9-2010	Included	80
17287	3-16-2010	Omitted	80
17289	3-16-2010	Included	80
17290	3-16-2010	Included	80
17291	3-23-2010	Omitted	80
17292	3-23-2010	Omitted	80
17293	3-23-2010	Omitted	80
17294	3-23-2010	Omitted	80
17295	3-23-2010	Omitted	80
17296	3-23-2010	Omitted	80
17297	3-23-2010	Included	80
17298	3-23-2010	Included	80
17299	3-30-2010	Omitted	80
17300	3-30-2010	Omitted	80
17301	3-30-2010	Omitted	80
17302	3-30-2010	Omitted	80
17303	3-30-2010	Omitted	80
17304	3-30-2010	Omitted	80
17335	6- 1-2010	Omitted	80
17336	6- 1-2010	Omitted	80

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
17337	6- 1-2010	Omitted	80
17338	6- 1-2010	Included	80
17339	6- 1-2010	Omitted	80
17340	6- 1-2010	Omitted	80
17341	6- 8-2010	Omitted	80
17342	6-15-2010	Included	80
17343	6-15-2010	Omitted	80
17344	6-22-2010	Omitted	80
17345	6-29-2010	Included	80
17346	7-13-2010	Omitted	80
17347	7-13-2010	Omitted	80
17348	7-13-2010	Omitted	80
17349	7-13-2010	Included	80
17350	7-13-2010	Omitted	80
17351	7-13-2010	Omitted	80
17352	7-13-2010	Included	80
17353	7-13-2010	Omitted	80
17354	7-13-2010	Omitted	80
17355	7-20-2010	Omitted	80
17356	7-20-2010	Omitted	80
17357	7-20-2010	Omitted	80
17358	7-20-2010	Included	80
17359	7-20-2010	Included	80
17360	7-20-2010	Included	80
17361	7-20-2010	Included	80
17362	7-27-2010	Included	80
17363	7-27-2010	Included	80
17364	7-27-2010	Included	80
17365	7-27-2010	Included	80
17366	7-27-2010	Included	80
17367	8- 3-2010	Omitted	80
17368	8-10-2010	Omitted	80
17369	8-10-2010	Included	80
17370	8-17-2010	Omitted	80
17371	8-17-2010	Omitted	80
17372	8-17-2010	Omitted	80
17373	8-17-2010	Omitted	80
17374	8-17-2010	Omitted	80
17400	8-31-2010	Omitted	80
17401	8-31-2010	Omitted	80
17402	8-31-2010	Included	80
17425	10- 5-2010	Omitted	80
17426	10- 5-2010	Omitted	80
17427	10- 5-2010	Included	80
17428	10- 5-2010	Included	80
17429	10-12-2010	Omitted	80
17430	10-19-2010	Omitted	80

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
17431	10-19-2010	Omitted	80
17432	10-19-2010	Omitted	80
17433	10-19-2010	Omitted	80
17434	10-19-2010	Omitted	80
17435	10-19-2010	Omitted	80
17436	10-19-2010	Omitted	80
17437	10-19-2010	Omitted	80
17438	10-19-2010	Omitted	80
17439	10-26-2010	Omitted	80
17440	10-26-2010	Omitted	80
17441	10-26-2010	Included	80
17442	10-26-2010	Included	80
17443	11- 2-2010	Omitted	80
17444	11- 2-2010	Omitted	80
17445	11- 2-2010	Omitted	80
17446	11- 2-2010	Omitted	80
17447	11- 2-2010	Omitted	80
17448	11- 2-2010	Omitted	80
17449	11- 2-2010	Omitted	80
17450	11- 2-2010	Omitted	80
17451	11- 2-2010	Omitted	80
17452	11- 9-2010	Omitted	80
17453	11- 9-2010	Omitted	80
17454	11- 9-2010	Omitted	80
17455	11- 9-2010	Omitted	80
17456	11-10-2010	Omitted	80
17457	11-16-2010	Omitted	80
17458	11-16-2010	Omitted	80
17459	11-16-2010	Omitted	80
17460	11-16-2010	Omitted	80
17461	11-30-2010	Included	80
17462	11-30-2010	Omitted	80
17463	11-30-2010	Omitted	80
17464	11-30-2010	Omitted	80
17465	11-30-2010	Omitted	80
17466	12- 7-2010	Included	80
17467	12- 7-2010	Included	80
17468	12- 7-2010	Omitted	80
17469	12- 7-2010	Omitted	80
17470	12- 7-2010	Omitted	80
17471	12-21-2010	Included	80
17472	12-21-2010	Omitted	80
17473	12-21-2010	Omitted	80
17474	12-21-2010	Omitted	80
17475	12-21-2010	Omitted	80
17476	12-21-2010	Omitted	80
17477	1- 6-2011	Omitted	80

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17478	1- 6-2011	Omitted	80
17479	1- 6-2011	Omitted	80
17480	1- 6-2011	Included	80
17481	1- 6-2011	Included	80
17482	1-11-2011	Omitted	80
17483	1-18-2011	Omitted	80
17484	1-18-2011	Omitted	80
17485	1-18-2011	Omitted	80
17486	1-18-2011	Omitted	80
17487	1-18-2011	Included	80
17488	1-18-2011	Included	80
17489	1-18-2011	Included	80
17490	1-25-2011	Included	80
17491	1-25-2011	Omitted	80
17492	1-25-2011	Included	80
17493	2- 1-2011	Included	80
17494	2- 8-2011	Omitted	80
17495	2- 8-2011	Omitted	80
17496	2- 8-2011	Omitted	80
17497	2- 8-2011	Included	80
17498	2-15-2011	Omitted	80
17499	2-15-2011	Omitted	80
17500	2-15-2011	Omitted	80
17501	2-15-2011	Omitted	80
17502	3- 1-2011	Omitted	80
17503	3- 1-2011	Omitted	80
17504	3- 1-2011	Omitted	80
17505	3- 1-2011	Omitted	80
17506	3- 8-2011	Omitted	80
17507	3- 8-2011	Included	80
17508	3- 8-2011	Included	80
17509	3- 8-2011	Omitted	80
17510	3- 8-2011	Omitted	80
17511	3- 8-2011	Omitted	80
17512	3- 8-2011	Omitted	80
17513	3- 8-2011	Omitted	80
17514	3-15-2011	Omitted	80
17515	3-22-2011	Omitted	80
17516	3-29-2011	Included	80
17517	3-29-2011	Included	80
17518	3-29-2011	Included	80
17519	3-29-2011	Included	80
17520	3-29-2011	Omitted	80
17521	3-29-2011	Omitted	80
17522	3-29-2011	Omitted	80
17523	3-29-2011	Omitted	80
17524	4- 5-2011	Omitted	80

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
17525	4- 5-2011	Omitted	80
17526	4-12-2011	Omitted	80
17527	4-12-2011	Omitted	80
17528	4-12-2011	Included	80
17529	4-12-2011	Omitted	80
17530	4-12-2011	Omitted	80
17531	4-12-2011	Included	80
17532	4-19-2011	Included	80
17533	4-19-2011	Omitted	80
17534	4-19-2011	Omitted	80
17535	4-19-2011	Omitted	80
17536	4-19-2011	Omitted	80
17537	4-19-2011	Omitted	80
17538	4-19-2011	Omitted	80
17539	4-19-2011	Included	80
17540	4-19-2011	Included	80
17541	4-26-2011	Omitted	80
17542	4-26-2011	Omitted	80
17543	4-26-2011	Included	80
17544	4-26-2011	Included	80
17545	4-26-2011	Included	80
17546	5- 3-2011	Included	80
17547	5- 3-2011	Included	80
17548	5- 3-2011	Omitted	80
17549	5- 3-2011	Included	80
17550	5-10-2011	Omitted	80
17551	5-10-2011	Omitted	80
17552	5-10-2011	Omitted	80
17553	5-10-2011	Omitted	80
17554	5-10-2011	Omitted	80
17555	5-10-2011	Omitted	80
17556	5-10-2011	Omitted	80
17557	5-17-2011	Included	80
17558	5-17-2011	Omitted	80
17559	5-17-2011	Omitted	80
17560	5-17-2011	Included	80
17561	5-17-2011	Included	80
17562	5-17-2011	Included	80
17563	5-24-2011	Omitted	80
17564	5-24-2011	Omitted	80
17565	5-24-2011	Omitted	80
17566	5-24-2011	Omitted	80
17567	5-24-2011	Included	80
17568	5-24-2011	Omitted	80
17569	5-24-2011	Omitted	80
17570	5-24-2011	Included	80
17571	5-24-2011	Included	80

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17572	5-31-2011	Omitted	80
17573	5-31-2011	Omitted	80
17574	6- 7-2011	Omitted	80
17575	6- 7-2011	Included	80
17576	6- 7-2011	Included	80
17577	7- 7-2011	Included	80
17578	6- 7-2011	Included	80
17579	6-14-2011	Included	80
17580	6-14-2011	Included	80
17581	6-14-2011	Included	80
17582	6-14-2011	Included	80
17583	6-14-2011	Included	80
17584	6-14-2011	Omitted	80
17585	6-14-2011	Included	80
17586	6-14-2011	Omitted	80
17587	6-21-2011	Omitted	80
17588	6-21-2011	Omitted	80
17589	6-21-2011	Omitted	80
17590	6-21-2011	Omitted	80
17591	6-21-2011	Omitted	80
17592	6-21-2011	Omitted	80
17593	6-21-2011	Omitted	80
17594	6-28-2011	Included	80
17595	6-28-2011	Omitted	80
17596	6-28-2011	Omitted	80
17597	6-28-2011	Omitted	80
17598	7- 5-2011	Omitted	80
17599	7-12-2011	Omitted	80
17600	7-19-2011	Omitted	80
17601	7-19-2011	Omitted	80
17602	7-19-2011	Omitted	80
17603	7-19-2011	Included	80
17604	7-19-2011	Included	80
17605	7-19-2011	Omitted	80
17606	7-26-2011	Omitted	80
17607	7-26-2011	Omitted	80
17608	7-26-2011	Included	80
17609	8- 2-2011	Omitted	80
17610	8- 2-2011	Omitted	80
17611	8- 2-2011	Omitted	80
17612	8- 2-2011	Omitted	80
17613	8- 2-2011	Omitted	80
17614	8- 2-2011	Omitted	80
17615	8- 2-2011	Omitted	80
17616	8- 2-2011	Omitted	80
17617	8- 2-2011	Omitted	80
17618	8- 9-2011	Omitted	80

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17619	8- 9-2011	Omitted	80
17620	8- 9-2011	Omitted	80
17621	8- 9-2011	Omitted	80
17622	8- 9-2011	Omitted	80
17623	8- 9-2011	Omitted	80
17624	8- 9-2011	Omitted	80
17625	8-16-2011	Included	80
17626	8-16-2011	Omitted	80
17627	8-16-2011	Omitted	80
17628	8-16-2011	Included	80
17629	8-16-2011	Omitted	80
17630	8-16-2011	Included	80
17631	8-23-2011	Omitted	80
17632	8-23-2011	Omitted	80
17633	8-23-2011	Omitted	80
17634	8-30-2011	Included	80
17635	8-30-2011	Included	80
17636	8-30-2011	Omitted	80
17637	8-30-2011	Included	80
17638	8-30-2011	Omitted	80
17639	8-30-2011	Omitted	80
17640	8-30-2011	Included	80
17641	8-30-2011	Omitted	80
17642	8-30-2011	Omitted	80
17643	9-20-2011	Omitted	80
17644	9-20-2011	Omitted	80
17645	9-20-2011	Omitted	80
17646	9-20-2011	Omitted	80
17647	9-20-2011	Omitted	80
17648	9-20-2011	Omitted	80
17649	9-20-2011	Included	80
17650	9-27-2011	Included	80
17651	10- 4-2011	Omitted	80
17652	10- 4-2011	Omitted	80
17653	10- 4-2011	Omitted	80
17542	4-26-2011	Included	81
17654	10-18-2011	Omitted	81
17655	10-18-2011	Omitted	81
17656	10-18-2011	Included	81
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17666	11- 1-2011	Included	81
17667	11- 1-2011	Included	81
17668	11- 1-2011	Omitted	81
17669	11- 1-2011	Omitted	81
17670	11- 1-2011	Included	81
17671	11- 1-2011	Omitted	81
17672	11- 1-2011	Included	81
17673	11- 1-2011	Included	81
17674	11- 8-2011	Omitted	81
17675	11-15-2011	Omitted	81
17676	11-15-2011	Included	81
17677	11-29-2011	Omitted	81
17678	11-29-2011	Omitted	81
17679	11-29-2011	Omitted	81
17680	11-29-2011	Included	81
17681	12- 6-2011	Omitted	81
17682	12- 6-2011	Omitted	81
17683	12- 6-2011	Omitted	81
17684	12- 6-2011	Omitted	81
17685	12- 6-2011	Omitted	81
17686	12- 6-2011	Included	81
17687	12- 6-2011	Omitted	81
17688	12- 6-2011	Omitted	81
17689	12- 6-2011	Included	81
17690	12- 6-2011	Included	81
17691	12- 6-2011	Included	81
17692	12-13-2011	Omitted	81
17693	12-20-2011	Omitted	81
17694	12-20-2011	Omitted	81
17695	12-20-2011	Omitted	81
17696	12-20-2011	Omitted	81
17697	12-20-2011	Omitted	81
17698	12-20-2011	Omitted	81
17699	12-20-2011	Included	81
17700	12-20-2011	Included	81
17701	1- 3-2012	Included	81
17702	1- 3-2012	Omitted	81
17703	1-10-2012	Omitted	81
17704	1-17-2012	Omitted	81
17705	1-17-2012	Omitted	81
17706	1-17-2012	Omitted	81
17707	1-17-2012	Omitted	81
17708	1-17-2012	Omitted	81
17709	1-17-2012	Omitted	81
17710	1-17-2012	Included	81
17711	1-17-2012	Omitted	81

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17712	2- 7-2012	Omitted	81
17713	2- 7-2012	Omitted	81
17714	2- 7-2012	Omitted	81
17715	2- 7-2012	Omitted	81
17716	2- 7-2012	Omitted	81
17717	2- 7-2012	Omitted	81
17718	2- 7-2012	Omitted	81
17719	2- 7-2012	Omitted	81
17720	2- 7-2012	Omitted	81
17721	2- 7-2012	Included	81
17722	2- 7-2012	Omitted	81
17723	2- 7-2012	Omitted	81
17724	2- 7-2012	Omitted	81
17725	2- 7-2012	Omitted	81
17726	2- 7-2012	Included	81
17727	2- 7-2012	Omitted	81
17728	2-21-2012	Omitted	81
17729	2-21-2012	Omitted	81
17730	2-21-2012	Omitted	81
17731	2-21-2012	Omitted	81
17732	2-21-2012	Included	81
17733	2-21-2012	Included	81
17734	2-21-2012	Included	81
17735	3- 6-2012	Omitted	81
17736	3- 6-2012	Omitted	81
17737	3- 6-2012	Omitted	81
17738	3- 6-2012	Included	81
17739	3- 6-2012	Included	81
17740	3- 6-2012	Included	81
17741	3- 6-2012	Included	81
17742	3- 6-2012	Included	81
17743	3- 6-2012	Included	81
17744	3- 6-2012	Included	81
17745	3- 6-2012	Omitted	81
17746	3- 6-2012	Included	81
17747	3- 6-2012	Omitted	81
17748	3- 6-2012	Omitted	81
17749	3- 6-2012	Included	81
17750	3- 6-2012	Included	81
17751	3- 6-2012	Included	81
17752	3-20-2012	Included	81
17753	3-20-2012	Included	81
17754	3-20-2012	Included	81
17755	3-20-2012	Included	81
17756	3-20-2012	Included	81
17757	3-20-2012	Included	81
17758	3-20-2012	Omitted	81

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17759	3-20-2012	Omitted	81
17760	3-20-2012	Omitted	81
17761	3-20-2012	Omitted	81
17762	4- 3-2012	Omitted	81
17763	4- 3-2012	Omitted	81
17764	4- 3-2012	Omitted	81
17765	4- 3-2012	Included	81
17766	4-10-2012	Included	81
17767	4-17-2012	Included	81
17768	4-17-2012	Omitted	81
17769	4-17-2012	Omitted	81
17770	4-17-2012	Included	81
17771	4-17-2012	Included	81
17772	4-17-2012	Included	81
17773	4-17-2012	Included	81
17774	4-17-2012	Included	81
17775	4-17-2012	Omitted	81
17776	5- 1-2012	Included	81
17777	5- 1-2012	Included	81
17778	5- 1-2012	Omitted	81
17779	5- 1-2012	Included	81
17780	5- 1-2012	Omitted	81
17782	5- 1-2012	Omitted	81
17783	5- 1-2012	Omitted	81
17784	5-15-2012	Omitted	81
17785	5-15-2012	Omitted	81
17786	5-15-2012	Omitted	81
17787	5-15-2012	Included	81
17788	5-15-2012	Omitted	81
17789	5-15-2012	Omitted	81
17790	5-15-2012	Omitted	81
17791	5-29-2012	Omitted	81
17792	5-29-2012	Included	81
17793	5-29-2012	Omitted	81
17794	5-29-2012	Included	81
17795	6- 5-2012	Omitted	81
17796	6- 5-2012	Omitted	81
17797	6- 5-2012	Omitted	81
17798	6- 5-2012	Omitted	81
17799	6- 5-2012	Omitted	81
17800	6- 5-2012	Included	81
17801	6- 5-2012	Included	81
17802	6- 5-2012	Included	81
17803	6- 5-2012	Included	81
17804	6- 5-2012	Included	81
17805	6- 5-2012	Included	81
17806	6- 5-2012	Included	81

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17807	6- 5-2012	Included	81
17808	6- 5-2012	Included	81
17809	6- 5-2012	Included	81
17810	6- 5-2012	Included	81
17811	6- 5-2012	Included	81
17812	6- 5-2012	Included	81
17813	6- 5-2012	Included	81
17814	6- 5-2012	Included	81
17815	6-19-2012	Included	81
17816	6-19-2012	Omitted	81
17817	7- 3-2012	Omitted	81
17818	7- 3-2012	Omitted	81
17819	7-17-2012	Omitted	81
17820	7-17-2012	Omitted	81
17821	7-17-2012	Omitted	81
17822	7-17-2012	Included	81
17823	7-17-2012	Included	81
17824	7-17-2012	Omitted	81
17825	7-17-2012	Omitted	81
17826	7-31-2012	Included	81
17827	7-31-2012	Included	81
17828	7-31-2012	Omitted	81
17829	7-31-2012	Omitted	81
17830	7-31-2012	Omitted	81
17831	7-31-2012	Omitted	81
17832	7-31-2012	Omitted	81
17833	7-31-2012	Omitted	81
17834	7-31-2012	Omitted	81
17835	7-31-2012	Omitted	81
17836	7-31-2012	Omitted	81
17837	7-31-2012	Omitted	81
17838	7-31-2012	Omitted	81
17839	7-31-2012	Omitted	81
17840	7-31-2012	Included	81
17841	7-31-2012	Included	81
17842	7-31-2012	Included	81
17843	7-31-2012	Included	81
17844	7-31-2012	Included	81
17845	7-31-2012	Included	81
17846	8- 7-2012	Included	81
17847	8- 7-2012	Included	81
17848	8- 7-2012	Omitted	81
17849	8-14-2012	Included	81
17850	8-14-2012	Omitted	81
17851	8-21-2012	Omitted	81
17852	8-21-2012	Omitted	81
17853	8-21-2012	Omitted	81

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17854	8-21-2012	Included	81
17855	8-21-2012	Included	81
17856	8-21-2012	Omitted	81
17857	8-21-2012	Omitted	81
17858	8-21-2012	Omitted	81
17859	8-21-2012	Included	81
17860	8-21-2012	Omitted	81
17861	8-28-2012	Omitted	81
17862	8-28-2012	Omitted	81
17863	8-28-2012	Included	81
17864	9-11-2012	Omitted	81
17865	9-11-2012	Included	81
17866	9-11-2012	Included	81
17867	9-18-2012	Omitted	81
17868	9-18-2012	Omitted	81
17869	9-18-2012	Included	81
17870	9-18-2012	Omitted	81
17871	9-19-2012	Omitted	81
17872	9-18-2012	Omitted	81
17873	9-18-2012	Omitted	81
17874	9-18-2012	Omitted	81
17875	9-18-2012	Omitted	81
17876	9-18-2012	Omitted	81
17877	9-18-2012	Included	81
17878	9-18-2012	Included	81
17879	9-18-2012	Included	81
17880	9-18-2012	Omitted	81
17881	9-18-2012	Omitted	81
17882	10- 2-2012	Included	81
17883	10- 2-2012	Omitted	81
17884	10- 2-2012	Omitted	81
17885	10- 2-2012	Omitted	81
17886	10- 9-2012	Included	81
17887	10-16-2012	Omitted	82
17888	10-16-2012	Omitted	82
17889	10-16-2012	Omitted	82
17890	10-16-2012	Omitted	82
17891	10-16-2012	Omitted	82
17892	10-16-2012	Omitted	82
17893	10-30-2012	Omitted	82
17894	10-30-2012	Omitted	82
17895	10-30-2012	Omitted	82
17896	10-30-2012	Omitted	82
17897	10-30-2012	Omitted	82
17898	10-30-2012	Included	82
17899	10-30-2012	Omitted	82
17900	10-30-2012	Included	82

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17901	10-30-2012	Omitted	82
17902	10-30-2012	Omitted	82
17903	11- 6-2012	Included	82
17904	11- 6-2012	Included	82
17905	11- 6-2012	Included	82
17906	12- 4-2012	Omitted	82
17907	12- 4-2012	Omitted	82
17908	12- 4-2012	Omitted	82
17909	12- 4-2012	Omitted	82
17910	12- 4-2012	Omitted	82
17911	12-18-2012	Omitted	82
17912	12-18-2012	Included	82
17913	12-18-2012	Included	82
17914	12-18-2012	Omitted	82
17915	12-18-2012	Omitted	82
17916	12-18-2012	Omitted	82
17917	12-18-2012	Omitted	82
17918	12-18-2012	Omitted	82
17919	12-18-2012	Included	82
17920	12-18-2012	Omitted	82
17921	12-18-2012	Included	82
17922	1- 2-2013	Included	82
17923	1- 2-2013	Included	82
17924	1- 8-2013	Included	82
17925	1- 8-2013	Omitted	82
17926	1-15-2013	Omitted	82
17927	1-15-2013	Included	82
17928	1-15-2013	Omitted	82
17929	1-15-2013	Omitted	82
17930	1-15-2013	Included	82
17931	1-29-2013	Omitted	82
17932	1-29-2013	Omitted	82
17933	1-29-2013	Omitted	82
17934	1-29-2013	Omitted	82
17935	1-29-2013	Omitted	82
17936	1-29-2013	Omitted	82
17937	1-29-2013	Omitted	82
17938	1-29-2013	Omitted	82
17939	2- 5-2013	Omitted	82
17940	2- 5-2013	Omitted	82
17941	2- 5-2013	Omitted	82
17942	2- 5-2013	Included	82
17943	2- 5-2013	Included	82
17944	2- 5-2013	Included	82
17945	2- 5-2013	Included	82
17946	2- 5-2013	Included	82
17947	2- 5-2013	Omitted	82

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17948	2- 5-2013	Omitted	82
17949	2-19-2013	Included	82
17950	2-19-2013	Included	82
17951	2-19-2013	Omitted	82
17952	2-19-2013	Omitted	82
17953	2-19-2013	Omitted	82
17954	2-19-2013	Omitted	82
17955	2-19-2013	Included	82
17956	2-19-2013	Included	82
17957	2-19-2013	Included	82
17958	2-19-2013	Included	82
17959	2-19-2013	Omitted	82
17960	2-19-2013	Included	82
17961	2-26-2013	Omitted	82
17962	3- 5-2013	Included	82
17963	3- 5-2013	Omitted	82
17964	3- 5-2013	Omitted	82
17965	3- 5-2013	Omitted	82
17966	3- 5-2013	Omitted	82
17967	3- 5-2013	Included	82
17968	3- 5-2013	Included	82
17969	3- 5-2013	Included	82
17970	3-19-2013	Omitted	82
17971	3-19-2013	Omitted	82
17972	3-19-2013	Omitted	82
17973	3-19-2013	Omitted	82
17974	3-19-2013	Omitted	82
17975	3-19-2013	Omitted	82
17976	3-19-2013	Omitted	82
17978	4- 2-2013	Omitted	82
17979	4- 2-2013	Omitted	82
17980	4- 2-2013	Included	82
17981	4- 2-2013	Included	82
17982	4- 2-2013	Included	82
17983	4- 2-2013	Included	82
17984	4- 2-2013	Included	82
17985	4- 2-2013	Omitted	82
17986	4- 2-2013	Omitted	82
17987	4- 9-2013	Omitted	82
17988	4-16-2013	Omitted	82
17989	4-16-2013	Omitted	82
17990	4-16-2013	Omitted	82
17991	4-16-2013	Omitted	82
17992	4-30-2013	Included	82
17993	4-30-2013	Omitted	82
17994	4-30-2013	Omitted	82
17995	4-30-2013	Omitted	82

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17996	4-30-2013	Omitted	82
17997	4-30-2013	Omitted	82
17998	4-30-2013	Omitted	82
17999	4-30-2013	Omitted	82
18000	4-30-2013	Omitted	82
18001	4-30-2013	Omitted	82
18002	4-30-2013	Omitted	82
18003	4-30-2013	Included	82
18004	4-30-2013	Included	82
18005	4-30-2013	Included	82
18006	5- 7-2013	Omitted	82
18007	5- 7-2013	Omitted	82
18008	5- 7-2013	Omitted	82
18009	5- 7-2013	Included	82
18010	5- 7-2013	Included	82
18011	5-21-2013	Omitted	82
18012	5-21-2013	Omitted	82
18013	5-21-2013	Omitted	82
18014	5-21-2013	Omitted	82
18015	5-21-2013	Omitted	82
18016	5-21-2013	Omitted	82
18017	5-21-2013	Omitted	82
18018	5-21-2013	Omitted	82
18019	5-28-2013	Omitted	82
18020	6- 4-2013	Included	82
18021	6- 4-2013	Omitted	82
18022	6- 4-2013	Omitted	82
18023	6- 4-2013	Omitted	82
18024	6- 4-2013	Omitted	82
18025	6- 4-2013	Included	82
18026	6- 4-2013	Included	82
18027	6- 4-2013	Omitted	82
18028	6- 4-2013	Included	82
18029	6-18-2013	Omitted	82
18030	7- 2-2013	Omitted	82
18031	7- 2-2013	Omitted	82
18032	7- 2-2013	Omitted	82
18033	7- 2-2013	Omitted	82
18034	7- 2-2013	Omitted	82
18035	7- 2-2013	Omitted	82
18036	7- 2-2013	Omitted	82
18037	7- 2-2013	Omitted	82
18038	7- 2-2013	Omitted	82
18039	7- 2-2013	Omitted	82
18040	7-16-2013	Omitted	82
18041	7-16-2013	Included	82
18042	7-16-2013	Omitted	82

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18043	7-16-2013	Included	82
18044	7-30-2013	Omitted	82
18045	7-30-2013	Omitted	82
18046	7-30-2013	Omitted	82
18047	7-30-2013	Omitted	82
18048	7-30-2013	Omitted	82
18049	7-30-2013	Omitted	82
18050	8- 6-2013	Omitted	82
18051	8- 6-2013	Omitted	82
18052	8- 6-2013	Omitted	82
18053	8- 6-2013	Omitted	82
18054	8- 6-2013	Omitted	82
18055	8- 6-2013	Omitted	82
18056	8- 6-2013	Included	82
18057	8- 6-2013	Included	82
18058	8- 6-2013	Included	82
18059	8- 6-2013	Omitted	82
18060	8-20-2013	Omitted	82
18061	8-20-2013	Omitted	82
18062	8-20-2013	Omitted	82
18063	8-20-2013	Omitted	82
18064	8-20-2013	Omitted	82
18065	8-20-2013	Included	82
18066	8-20-2013	Included	82
18067	8-20-2013	Included	82
18068	8-20-2013	Included	82
18069	8-20-2013	Omitted	82
18070	8-20-2013	Omitted	82
18071	9-17-2013	Omitted	82
18072	9-17-2013	Omitted	82
18073	9-17-2013	Omitted	82
18074	9-17-2013	Omitted	82
18075	9-17-2013	Omitted	82
18076	9-17-2013	Omitted	82
18077	9-17-2013	Omitted	82
18078	10- 1-2013	Omitted	82
18079	10- 1-2013	Omitted	82
18080	10- 1-2013	Omitted	82
18081	10- 1-2013	Omitted	82
18082	10- 1-2013	Omitted	82
18083	10-15-2013	Omitted	82
18084	10-15-2013	Omitted	82
18085	10-15-2013	Omitted	82

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18086	10-15-2013	Omitted	82
18087	10-15-2013	Omitted	82
18088	10-15-2013	Omitted	82
18089	10-29-2013	Included	82
18090	10-29-2013	Included	82
18091	11- 5-2013	Omitted	83
18092	11- 5-2013	Omitted	83
18093	11- 5-2013	Omitted	83
18094	11-19-2013	Omitted	83
18095	10-21-2013	Omitted	83
18096	11-19-2013	Omitted	83
18097	11-19-2013	Omitted	83
18098	11-19-2013	Omitted	83
18099	12- 3-2013	Included	83
18100	12-17-2013	Omitted	83
18101	12-17-2013	Included	83
18102	12-17-2013	Omitted	83
18103	12-17-2013	Omitted	83
18104	12-17-2013	Included	83
18105	12-17-2013	Included	83
18106	12-17-2013	Included	83
18107	12-17-2013	Omitted	83
18108	12-17-2013	Omitted	83
18109	12-17-2013	Omitted	83
18110	12-17-2013	Omitted	83
18111	12-17-2013	Omitted	83
18112	12-17-2013	Omitted	83
18113	12-17-2013	Omitted	83
18114	1- 2-2014	Omitted	83
18115	1- 2-2014	Omitted	83
18116	1- 2-2014	Omitted	83
18117	1- 2-2014	Omitted	83
18118	1- 7-2014	Omitted	83
18119	2- 4-2014	Omitted	83
18120	2- 4-2014	Omitted	83
18121	2- 4-2014	Omitted	83
18122	2- 4-2014	Included	83
18123	2- 4-2014	Included	83
18124	2- 4-2014	Omitted	83
18125	2-18-2014	Omitted	83
18126	2-18-2014	Omitted	83
18127	2-18-2014	Omitted	83
18128	2-18-2014	Omitted	83
18129	2-18-2014	Omitted	83
18130	3- 4-2014	Included	83
18131	3- 4-2014	Omitted	83
18132	3- 4-2014	Omitted	83

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18133	3- 4-2014	Omitted	83
18134	3- 4-2014	Included	83
18135	3- 4-2014	Included	83
18136	3- 4-2014	Omitted	83
18137	3- 4-2014	Included	83
18138	3- 4-2014	Omitted	83
18139	3- 4-2014	Omitted	83
18140	3- 4-2014	Omitted	83
18141	3-18-2014	Omitted	83
18142	3-18-2014	Omitted	83
18143	3-18-2014	Omitted	83
18144	3-18-2014	Omitted	83
18145	4- 1-2014	Omitted	83
18146	4- 1-2014	Omitted	83
18147	4- 1-2014	Included	83
18148	4- 1-2014	Included	83
18149	4- 1-2014	Omitted	83
18150	4- 1-2014	Omitted	83
18151	4- 1-2014	Omitted	83
18152	4- 1-2014	Included	83
18153	4- 1-2014	Included	83
18154	4- 1-2014	Included	83
18155	4-15-2014	Omitted	83
18156	4-15-2014	Omitted	83
18157	4-15-2014	Omitted	83
18158	4-15-2014	Omitted	83
18159	4-15-2014	Omitted	83
18160	4-15-2014	Omitted	83
18161	4-15-2014	Included	83
18162	4-15-2014	Included	83
18163	4-15-2014	Included	83
18164	4-22-2014	Omitted	83
18165	4-29-2014	Omitted	83
18166	4-29-2014	Omitted	83
18167	4-29-2014	Omitted	83
18168	4-29-2014	Omitted	83
18169	5- 6-2014	Included	83
18170	5-13-2014	Included	83
18171	5-13-2014	Omitted	83
18172	5-20-2014	Omitted	83
18173	5-20-2014	Omitted	83
18174	5-20-2014	Omitted	83
18175	5-20-2014	Omitted	83
18176	5-20-2014	Omitted	83
18177	6- 3-2014	Omitted	83
18178	6- 3-2014	Omitted	83
18179	6- 3-2014	Omitted	83

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18180	6- 3-2014	Omitted	83
18181	6- 3-2014	Omitted	83
18182	6-17-2014	Omitted	83
18183	6-17-2014	Omitted	83
18184	6-17-2014	Omitted	83
18185	6-17-2014	Omitted	83
18186	6-17-2014	Omitted	83
18187	6-17-2014	Omitted	83
18188	6-17-2014	Omitted	83
18189	6-17-2014	Omitted	83
18190	6-17-2014	Omitted	83
18191	6-17-2014	Included	83
18192	6-17-2014	Included	83
18193	6-17-2014	Included	83
18194	6-17-2014	Omitted	83
18195	6-24-2014	Omitted	83
18196	6-24-2014	Omitted	83
18197	6-24-2014	Omitted	83
18198	6-24-2014	Omitted	83
18199	7- 1-2014	Omitted	83
18200	7- 1-2014	Omitted	83
18201	7- 1-2014	Included	83
18202	7- 1-2014	Included	83
18203	7-15-2014	Omitted	83
18204	7-15-2014	Omitted	83
18205	7-15-2014	Omitted	83
18206	7-15-2014	Omitted	83
18207	7-15-2014	Omitted	83
18208	7-15-2014	Omitted	83
18209	7-15-2014	Omitted	83
18210	7-15-2014	Omitted	83
18211	7-15-2014	Omitted	83
18212	7-22-2014	Omitted	83
18213	7-22-2014	Omitted	83
18214	7-29-2014	Omitted	83
18215	7-29-2014	Omitted	83
18216	7-29-2014	Omitted	83
18217	7-29-2014	Omitted	83
18218	7-29-2014	Included	83
18219	7-29-2014	Omitted	83
18220	8- 5-2014	Omitted	83
18221	8- 5-2014	Omitted	83
18222	8- 5-2014	Omitted	83
18223	8-19-2014	Omitted	83
18224	8-19-2014	Included	83
18225	8-19-2014	Included	83
18226	8-19-2014	Included	83

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18227	8-19-2014	Included	83
18228	8-19-2014	Included	83
18229	8-19-2014	Omitted	83
18230	8-19-2014	Omitted	83
18231	8-19-2014	Omitted	83
18232	8-19-2014	Included	83
18233	8-19-2014	Omitted	83
18234	8-19-2014	Omitted	83
18235	9- 2-2014	Omitted	83
18236	9- 2-2014	Omitted	83
18237	9- 2-2014	Omitted	83
18238	9- 2-2014	Included	83
18239	9- 2-2014	Included	83
18240	9- 2-2014	Omitted	83
18241	9- 9-2014	Included	83
18242	9-16-2014	Omitted	84
18243	9-16-2014	Omitted	84
18244	9-16-2014	Included	84
18245	9-16-2014	Included	84
18246	9-16-2014	Omitted	84
18247	9-16-2014	Omitted	84
18248	9-23-2014	Included	84
18249	9-30-2014	Omitted	84
18250	9-30-2014	Omitted	84
18251	9-30-2014	Included	84
18252	10- 7-2014	Omitted	84
18253	10- 7-2014	Omitted	84
18254	10- 7-2014	Included	84
18255	10- 8-2014	Included	84
18256	10- 7-2014	Omitted	84
18257	10-14-2014	Omitted	84
18258	10-14-2014	Omitted	84
18259	10-21-2014	Omitted	84
18260	10-21-2014	Omitted	84
18261	10-21-2014	Omitted	84
18262	10-21-2014	Omitted	84
18263	10-21-2014	Omitted	84
18264	10-21-2014	Omitted	84
18265	10-21-2014	Omitted	84
18266	10-21-2014	Omitted	84
18267	10-21-2014	Omitted	84
18268	10-21-2014	Included	84
18269	10-21-2014	Included	84
18270	11- 4-2014	Omitted	84
18271	11- 4-2014	Omitted	84
18272	11- 4-2014	Omitted	84
18273	11- 4-2014	Omitted	84

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18274	11- 4-2014	Omitted	84
18275	11- 4-2014	Omitted	84
18276	11- 4-2014	Omitted	84
18277	11-11-2014	Omitted	84
18278	11-11-2014	Omitted	84
18279	11-11-2014	Omitted	84
18280	11-11-2014	Omitted	84
18281	11-18-2014	Omitted	84
18282	11-18-2014	Omitted	84
18283	12- 2-2014	Omitted	84
18284	12- 2-2014	Omitted	84
18285	12- 9-2014	Omitted	84
18286	12- 9-2014	Omitted	84
18287	12- 9-2014	Omitted	84
18288	12-16-2014	Omitted	84
18289	12-16-2014	Included	84
18290	12-16-2014	Included	84
18291	12-16-2014	Omitted	84
18292	12-16-2014	Omitted	84
18293	12-30-2014	Omitted	84
18294	12-30-2014	Omitted	84
18295	12-30-2014	Omitted	84
18296	12-30-2014	Omitted	84
18297	12-30-2014	Omitted	84
18298	12-30-2014	Omitted	84
18299	12-30-2014	Omitted	84
18300	12-30-2014	Omitted	84
18301	12-30-2014	Omitted	84
18302	1- 6-2015	Omitted	84
18303	1-13-2015	Omitted	84
18304	1-13-2015	Omitted	84
18305	1-20-2015	Omitted	84
18306	1-20-2015	Omitted	84
18307	1-20-2015	Omitted	84
18308	1-20-2015	Omitted	84
18309	1-20-2015	Included	84
18310	1-20-2015	Omitted	84
18311	1-27-2015	Omitted	84
18312	2-17-2015	Omitted	84
18313	2-17-2015	Omitted	84
18314	2-17-2015	Omitted	84
18315	2-17-2015	Omitted	84
18316	2-17-2015	Omitted	84
18317	2-24-2015	Omitted	84
18318	3- 3-2015	Omitted	84
18319	3- 3-2015	Omitted	84
18320	3- 3-2015	Omitted	84

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18321	3- 3-2015	Omitted	84
18322	3- 3-2015	Omitted	84
18323	PENDING	Omitted	84
18324	3-17-2015	Omitted	84
18325	3-17-2015	Omitted	84
18326	3-17-2015	Omitted	84
18327	3-24-2015	Omitted	84
18328	3-31-2015	Omitted	84
18332	4-14-2015	Included	84
18329	3-31-2015	Omitted	84
18330	3-31-2015	Omitted	84
18331	3-31-2015	Omitted	84
18332	4- 7-2015	Omitted	84
18333	4- 7-2015	Omitted	84
18334	4- 7-2015	Included	84
18335	4-14-2015	Omitted	84
18336	4-14-2015	Omitted	84
18337	4-14-2015	Omitted	84
18338	4-14-2015	Omitted	84
18339	4-14-2015	Omitted	84
18340	4-14-2015	Omitted	84
18341	4-14-2015	Omitted	84
18342	4-14-2015	Included	84
18343	4-14-2015	Omitted	84
18344	4-21-2015	Omitted	84
18345	4-21-2015	Included	84
18346	4-21-2015	Omitted	84
18347	4-28-2015	Omitted	84
18348	4-28-2015	Included	84
18349	4-28-2015	Included	84
18350	5- 5-2015	Omitted	84
18351	5- 5-2015	Included	84
18352	5-12-2015	Omitted	84
18353	5-12-2015	Omitted	84
18354	5-12-2015	Omitted	84
18355	5-12-2015	Omitted	84
18356	5-12-2015	Omitted	84
18357	5-19-2015	Omitted	84
18358	5-19-2015	Omitted	84
18359	5-26-2015	Omitted	84
18360	6- 2-2015	Omitted	84
18361	6- 2-2015	Omitted	84
18362	6- 2-2015	Included	84
18363	6- 2-2015	Included	84
18364	6- 2-2015	Included	84
18365	6- 2-2015	Included	84
18366	6- 2-2015	Included	84

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18367	6- 9-2015	Omitted	84
18368	6- 9-2015	Omitted	84
18369	6- 9-2015	Included	84
18370	6-16-2015	Included	84
18371	6-16-2015	Included	84
18372	6-16-2015	Omitted	84
18373	6-16-2015	Omitted	84
18374	6-16-2015	Omitted	84
18375	6-16-2015	Omitted	84
18376	6-16-2015	Omitted	84
18377	6-23-2015	Omitted	84
18378	6-23-2015	Omitted	84
18379	6-30-2015	Omitted	84
18380	6-30-2015	Omitted	84
18381	7- 7-2015	Included	84
18382	7- 7-2015	Included	84
18383	7- 7-2015	Included	84
18384	7- 7-2015	Omitted	84
18385	7-14-2015	Omitted	84
18386	7-14-2015	Omitted	84
18387	7-14-2015	Omitted	84
18388	7- 7-2015	Omitted	84
18389	7-21-2015	Included	84
18390	7-21-2015	Included	84
18391	7-28-2015	Included	84
18392	7-28-2015	Omitted	84
18393	7-28-2015	Omitted	84
18394	7-28-2015	Included	84
18395	7-28-2015	Omitted	84
18396	8- 4-2015	Omitted	84
18397	8- 4-2015	Omitted	84
18398	8- 4-2015	Omitted	84
18399	8-18-2015	Omitted	84
18400	8- 4-2015	Omitted	84
18402	8-18-2015	Omitted	84
18403	8-18-2015	Omitted	84
18404	8-18-2015	Omitted	84
18405	8-18-2015	Omitted	84
18406	8-18-2015	Omitted	84
18407	8-18-2015	Included	84
18408	8-18-2015	Included	84
18409	8-25-2015	Included	84
18401	8-11-2015	Included	85
18410	9- 8-2015	Included	85
18411	9- 8-2015	Included	85
18412	9- 8-2015	Omitted	85
18413	9- 8-2015	Included	85

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18414	9-15-2015	Omitted	85
18415	9-15-2015	Omitted	85
18416	9-22-2015	Omitted	85
18417	9-29-2015	Omitted	85
18418	9-29-2015	Omitted	85
18419	10- 6-2015	Omitted	85
18420	10- 6-2015	Omitted	85
18421	10- 6-2015	Omitted	85
18422	10- 6-2015	Omitted	85
18423	10- 6-2015	Omitted	85
18424	10-13-2015	Omitted	85
18425	10-13-2015	Omitted	85
18246	9-16-2014	Included	85
18426	10-20-2015	Omitted	85
18427	10-20-2015	Omitted	85
18428	10-20-2015	Omitted	85
18429	10-27-2015	Omitted	85
18430	10-27-2015	Omitted	85
18431	10-27-2015	Included	85
18432	10-27-2015	Omitted	85
18433	10-27-2015	Omitted	85
18434	11- 3-2015	Omitted	85
18435	11- 3-2015	Omitted	85
18436	11- 3-2015	Omitted	85
18437	11- 3-2015	Omitted	85
18438	11- 3-2015	Omitted	85
18439	11-10-2015	Omitted	85
18440	11-10-2015	Omitted	85
18441	11-17-2015	Omitted	85
18442	12- 1-2015	Omitted	85
18443	12- 1-2015	Omitted	85
18444	12- 1-2015	Omitted	85
18445	12- 1-2015	Omitted	85
18446	12- 1-2015	Omitted	85
18447	12- 8-2015	Included	85
18448	12- 8-2015	Included	85
18449	12-15-2015	Included	85
18450	12-15-2015	Included	85
18451	12-22-2015	Omitted	85
18452	12-22-2015	Omitted	85
18453	1-12-2016	Omitted	85
18454	1-12-2016	Included	85
18455	1-12-2016	Omitted	85
18456	1-12-2016	Omitted	85
18457	1-12-2016	Omitted	85
18458	1-12-2016	Included	85
18459	1-12-2016	Included	85

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18460	1-12-2016	Included	85
18461	1-12-2016	Included	85
18462	1-12-2016	Not Sent	85
18463	2- 9-2016	Omitted	85
18464	2-23-2016	Omitted	85
18465	2-23-2016	Omitted	85
18466	2-23-2016	Omitted	85
18467	2-23-2016	Included	85
18468	2-23-2016	Included	85
18469	2-23-2016	Omitted	85
18470	2-23-2016	Included	85
18471	2-23-2016	Included	85
18472	2-23-2016	Included	85
18473	3- 8-2016	Omitted	85
18474	3- 8-2016	Omitted	85
18475	3- 8-2016	Omitted	85
18476	3- 8-2016	Included	85
18477	3-22-2016	Omitted	85
18478	3-22-2016	Included	85
18479	3-22-2016	Omitted	85
18480	3-22-2016	Included	85
18481	3-22-2016	Omitted	85
18482	3-22-2016	Omitted	85
18483	3-22-2016	Omitted	85
18484	3-22-2016	Included	85
18485	4- 5-2016	Omitted	85
18486	4- 5-2016	Omitted	85
18487	4- 5-2016	Omitted	85
18488	4- 5-2016	Omitted	85
18489	4-19-2016	Included	85
18490	4-19-2016	Omitted	85
18491	4-19-2016	Omitted	85
18492	4-19-2016	Omitted	85
18494	4-19-2016	Omitted	85
18505	5-17-2016	Included	85
18493	4-19-2016	Omitted	85
18495	5- 3-2016	Omitted	85
18496	5- 3-2016	Omitted	85
18497	5- 3-2016	Omitted	85
18498	5- 3-2016	Included	85
18499	5-17-2016	Omitted	85
18500	5-17-2016	Omitted	85
18501	5-17-2016	Included	85
18502	5-17-2016	Omitted	85
18503	5-17-2016	Omitted	85
18504	5-17-2016	Omitted	85
18506	5-24-2016	Included	85

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18507	5-31-2016	Included	85
18508	5-31-2016	Included	85
18509	5-31-2016	Included	85
18510	5-31-2016	Included	85
18511	5-31-2016	Included	85
18512	5-31-2016	Included	85
18513	5-31-2016	Included	85
18514	5-31-2016	Included	85
18515	5-31-2016	Included	85
18516	5-31-2016	Included	85
18517	5-31-2016	Included	85
18518	5-31-2016	Included	85
18519	5-31-2016	Included	85
18520	5-31-2016	Omitted	85
18521	5-31-2016	Omitted	85
18523	6-14-2016	Omitted	85
18524	6-14-2016	Omitted	85
18525	6-14-2016	Omitted	85
18526	6-14-2016	Omitted	85
18527	6-14-2016	Omitted	85
18528	6-14-2016	Included	85
18529	6-14-2016	Omitted	85
18530	6-28-2016	Omitted	85
18531	6-28-2016	Included	85
18532	6-28-2016	Omitted	85
18533	6-28-2016	Omitted	85
18534	6-28-2016	Omitted	85
18535	6-28-2016	Included	85
18536	7-12-2016	Omitted	85
18537	7-12-2016	Omitted	85
18538	7-12-2016	Omitted	85
18539	7-12-2016	Omitted	85
18540	7-12-2016	Omitted	85
18541	7-19-2016	Omitted	85
18542	7-26-2016	Omitted	85
18543	7-26-2016	Omitted	85
18544	7-26-2016	Omitted	85
18545	7-26-2016	Omitted	85
18546	8- 9-2016	Included	86
18547	8- 9-2016	Included	86
18548	8- 9-2016	Included	86
18549	8- 9-2016	Included	86
18550	8- 9-2016	Included	86
18551	8- 9-2016	Omitted	86
18552	8- 9-2016	Omitted	86
18553	8- 9-2016	Omitted	86
18554	8- 9-2016	Omitted	86

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18555	8- 9-2016	Omitted	86
18556	8- 9-2016	Omitted	86
18557	8- 9-2016	Omitted	86
18558	8-23-2016	Omitted	86
18559	8-23-2016	Omitted	86
18560	8-23-2016	Omitted	86
18561	8-23-2016	Omitted	86
18562	8-23-2016	Omitted	86
18563	8-23-2016	Omitted	86
18564	8-23-2016	Omitted	86
18565	9- 6-2016	Included	86
18566	9- 6-2016	Omitted	86
18567	9- 6-2016	Included	86
18568	9- 6-2016	Omitted	86
18569	9- 6-2016	Omitted	86
18570	9- 6-2016	Omitted	86
18571	9- 6-2016	Omitted	86
18572	9- 6-2016	Omitted	86
18573	9-20-2016	Included	86
18574	9-20-2016	Included	86
18575	9-20-2016	Omitted	86
18576	9-20-2016	Included	86
18577	9-20-2016	Included	86
18578	10- 4-2016	Omitted	86
18579	10- 4-2016	Omitted	86
18580	10- 4-2016	Omitted	86
18581	10- 4-2016	Omitted	86
18582	10-18-2016	Omitted	86
18583	10-18-2016	Omitted	86
18584	10-18-2016	Omitted	86
18585	10-18-2016	Omitted	86
18586	11- 1-2016	Omitted	86
18587	11- 1-2016	Omitted	86
18588	11- 1-2016	Omitted	86
18589	11- 1-2016	Included	86
18590	11- 1-2016	Included	86
18591	11- 1-2016	Omitted	86
18592	11- 1-2016	Included	86
18593	11- 1-2016	Included	86
18594	11- 1-2016	Included	86
18595	11-15-2016	Omitted	86
18596	11-15-2016	Omitted	86
18597	11-15-2016	Included	86
18598	11-15-2016	Omitted	86
18599	11-15-2016	Omitted	86
18600	11-15-2016	Included	86
18601	11-29-2016	Omitted	86

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18602	11-29-2016	Omitted	86
18603	11-29-2016	Omitted	86
18604	11-29-2016	Omitted	86
18605	11-29-2016	Omitted	86
18606	11-29-2016	Omitted	86
18607	11-29-2016	Omitted	86
18608	11-29-2016	Omitted	86
18609	11-29-2016	Omitted	86
18610	11-29-2016	Omitted	86
18611	11-29-2016	Omitted	86
18612	11-29-2016	Omitted	86
18613	11-29-2016	Omitted	86
18614	11-29-2016	Omitted	86
18615	11-29-2016	Omitted	86
18616	11-29-2016	Omitted	86
18617	12- 6-2016	Included	86
18618	12- 6-2016	Omitted	86
18619	12- 6-2016	Omitted	86
18620	12- 6-2016	Omitted	86
18621	12- 6-2016	Omitted	86
18622	12- 6-2016	Included	86
18623	12-20-2016	Omitted	86
18624	12-20-2016	Omitted	86
18625	1-24-2017	Omitted	86
18626	2- 7-2017	Omitted	86
18627	2- 7-2017	Included	86
18628	2- 7-2017	Omitted	86
18629	2- 7-2017	Omitted	86
18630	2- 7-2017	Omitted	86
18631	2- 7-2017	Omitted	86
18632	2-28-2017	Omitted	86
18633	2-28-2017	Omitted	86
18634	2-28-2017	Omitted	86
18635	2-28-2017	Omitted	86
18636	2-28-2017	Omitted	86
18637	2-28-2017	Omitted	86
18638	3- 7-2017	Omitted	86
18639	3- 7-2017	Omitted	86
18640	3- 7-2017	Omitted	86
18641	3- 7-2017	Omitted	86
18642	3- 7-2017	Included	86
18643	3- 7-2017	Included	86
18644	3- 7-2017	Included	86
18645	3-21-2017	Omitted	86
18646	3-21-2017	Omitted	86
18647	3-21-2017	Omitted	86
18648	3-21-2017	Omitted	86

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18649	3-21-2017	Included	86
18650	3-21-2017	Omitted	86
18651	3-21-2017	Omitted	86
18652	3-21-2017	Included	86
18653	3-21-2017	Omitted	86
18654	3-21-2017	Included	86
18655	4- 4-2017	Omitted	86
18656	4- 4-2017	Omitted	86
18657	4- 4-2017	Omitted	86
18658	4- 4-2017	Omitted	86
18659	4- 4-2017	Omitted	86
18660	4- 4-2017	Omitted	86
18661	4-18-2017	Omitted	86
18662	4-18-2017	Omitted	86
18663	4-18-2017	Included	86
18664	4-18-2017	Omitted	86
18665	4-18-2017	Included	86
18666	4-18-2017	Omitted	86
18667	4-18-2017	Included	86
18668	5- 2-2017	Omitted	86
18669	5- 2-2017	Included	86
18670	5- 2-2017	Omitted	86
18671	5- 2-2017	Omitted	86
18672	5- 2-2017	Omitted	86
18673	5- 2-2017	Omitted	86
18674	5- 2-2017	Omitted	86
18675	5- 2-2017	Omitted	86
18676	5- 2-2017	Included	86
18677	5-16-2017	Omitted	86
18678	5-16-2017	Omitted	86
18679	5-16-2017	Omitted	86
18680	5-16-2017	Omitted	86
18681	5-16-2017	Included	86
18682	5-30-2017	Omitted	86
18683	5-30-2017	Omitted	86
18684	5-30-2017	Omitted	86
18685	5-30-2017	Omitted	86
18686	5-30-2017	Omitted	86
18687	5-30-2017	Included	86
18688	5-30-2017	Included	86
18689	6-13-2017	Omitted	86
18690	6-13-2017	Included	86
18691	6-13-2017	Included	86
18692	6-13-2017	Omitted	86
18693	6-13-2017	Omitted	86
18694	6-13-2017	Included	86
18695	6-13-2017	Included	86

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18696	6-13-2017	Included	86
18697	6-27-2017	Included	86
18698	6-27-2017	Included	86
18699	6-27-2017	Omitted	86
18700	6-27-2017	Omitted	86
18701	6-27-2017	Omitted	86
18702	6-27-2017	Omitted	86
18703	6-27-2017	Omitted	86
18704	6-27-2017	Included	86
18705	7-11-2017	Omitted	86
18706	7-11-2017	Omitted	86
18707	1-10-2017	Omitted	86
18708	7-25-2017	Omitted	86
18709	7-25-2017	Omitted	86
18710	7-25-2017	Omitted	86
18711	7-25-2017	Omitted	86
18712	7-25-2017	Omitted	86
18713	8- 8-2017	Omitted	86
18714	8- 8-2017	Included	86
18715	8-22-2017	Included	86
18716	8-22-2017	Omitted	86
18717	8-22-2017	Included	86
18718	9- 5-2017	Omitted	86
18719	8-22-2017	Included	86
18720	8-22-2017	Omitted	86
18721	9- 5-2017	Omitted	86
18722	9- 5-2017	Omitted	86
18723	9- 5-2017	Omitted	86
18724	9- 5-2017	Omitted	86
18725	9- 5-2017	Omitted	86
18726	9-19-2017	Included	86
18727	9-19-2017	Omitted	86
18728	9-19-2017	Omitted	86
18729	9-19-2017	Omitted	86
18730	9-19-2017	Omitted	86
18731	9-19-2017	Included	86
18732	10 3-2017	Included	87
18733	10-17-2017	Omitted	87
18734	10-17-2017	Omitted	87
18735	10-17-2017	Omitted	87
18736	10-31-2017	Omitted	87
18737	11-14-2017	Omitted	87
18738	11-14-2017	Omitted	87
18739	11-14-2017	Omitted	87
18740	11-14-2017	Included	87
18741	11-14-2017	Omitted	87
18742	11-14-2017	Omitted	87

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18743	11-28-2017	Omitted	87
18744	11-28-2017	Omitted	87
18745	11-28-2017	Omitted	87
18746	11-28-2017	Included	87
18747	12-12-2017	Omitted	87
18748	12-12-2017	Omitted	87
18749	12-19-2017	Omitted	87
18750	12-19-2017	Omitted	87
18751	1- 9-2018	Omitted	87
18752	1- 9-2018	Omitted	87
18753	1- 9-2018	Omitted	87
18754	1- 9-2018	Omitted	87
18755	2- 6-2018	Omitted	87
18756	2-20-2018	Omitted	87
18757	2-20-2018	Omitted	87
18758	2-20-2018	Omitted	87
18759	2-20-2018	Omitted	87
18760	2-20-2018	Omitted	87
18761	3- 6-2018	Included	87
18762	3- 6-2018	Included	87
18763	3- 6-2018	Included	87
18764	3- 6-2018	Omitted	87
18765	3- 6-2018	Omitted	87
18766	3- 6-2018	Omitted	87
18767	3- 6-2018	Omitted	87
18768	3- 6-2018	Omitted	87
18769	3- 6-2018	Omitted	87
18770	3-20-2018	Omitted	87
18771	3-20-2018	Included	87
18772	3-20-2018	Omitted	87
18773	4- 3-2018	Omitted	87
18774	4-17-2018	Included	87
18775	4-17-2018	Omitted	87
18776	4-17-2018	Omitted	87
18777	4-17-2018	Omitted	87
18778	4-17-2018	Omitted	87
18779	4-17-2018	Omitted	87
18780	4-17-2018	Omitted	87
18781	4-17-2018	Omitted	87
18782	4-17-2018	Included	87
18783	4-17-2018	Omitted	87
18784	5-15-2018	Omitted	87
18785	5- 1-2018	Included	87
18786	5-15-2018	Omitted	87
18787	5- 1-2018	Omitted	87
18788	5-15-2018	Omitted	87
18789	5-15-2018	Included	87

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18790	5-29-2018	Omitted	87
18791	5-29-2018	Omitted	87
18792	5-29-2018	Omitted	87
18793	5-29-2018	Omitted	87
18794	5-29-2018	Omitted	87
18795	5-29-2018	Omitted	87
18796	5-29-2018	Omitted	87
18797	7-10-2018	Included	87
18798	6-26-2018	Omitted	87
18799	6-12-2018	Omitted	87
18800	6-12-2018	Omitted	87
18801	6-12-2018	Omitted	87
18802	6-26-2018	Omitted	87
18803	6-26-2018	Omitted	87
18804	6-26-2018	Omitted	87
18805	6-26-2018	Omitted	87
18806	6-26-2018	Included	87
18807	7-10-2018	Omitted	87
18808	7-10-2018	Omitted	87
18809	7-10-2018	Omitted	87
18810	7-10-2018	Omitted	87
18811	7-10-2018	Omitted	87
18813	7-24-2018	Omitted	87
18814	7-24-2018	Omitted	87
18815	7-24-2018	Omitted	87
18816	7-24-2018	Omitted	87
18817	7-24-2018	Included	87
18818	7-24-2018	Omitted	87
18819	7-24-2018	Included	87
18820	7-24-2018	Omitted	87
18821	7-24-2018	Included	87
18822	7-24-2018	Included	87
18823	7-24-2018	Included	87
18824	7-24-2018	Included	87
18825	8- 7-2018	Omitted	87
18826	8- 7-2018	Omitted	87
18827	8- 7-2018	Omitted	87
18828	8- 7-2018	Included	87
18829	8-14-2018	Included	87
18830	8-21-2018	Omitted	87
18831	8-21-2018	Omitted	87
18832	8-21-2018	Omitted	87
18833	8-21-2018	Omitted	87
18834	8-21-2018	Omitted	87
18835	8-21-2018	Omitted	87
18836	8-21-2018	Omitted	87
18837	9- 4-2018	Omitted	87

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18838	9- 4-2018	Omitted	87
18839	9- 4-2018	Omitted	87
18840	9- 4-2018	Omitted	87
18841	9- 4-2018	Omitted	87
18842	9- 4-2018	Included	87
18812	7-10-2018	Included	88
18843	9-18-2018	Omitted	88
18844	9-18-2018	Omitted	88
18845	9-18-2018	Omitted	88
18846	9-18-2018	Omitted	88
18847	9-18-2018	Omitted	88
18848	9-18-2018	Omitted	88
18849	10- 2-2018	Omitted	88
18850	10- 2-2018	Omitted	88
18851	10- 2-2018	Omitted	88
18852	10- 2-2018	Omitted	88
18853	10- 2-2018	Omitted	88
18854	10- 2-2018	Omitted	88
18855	10- 2-2018	Omitted	88
18856	10- 2-2018	Omitted	88
18857	10- 2-2018	Omitted	88
18858	10- 2-2018	Omitted	88
18859	10-16-2018	Included	88
18860	10-16-2018	Omitted	88
18861	10-16-2018	Omitted	88
18862	10-16-2018	Omitted	88
18863	10-16-2018	Omitted	88
18864	10-16-2018	Omitted	88
18865	10-30-2018	Omitted	88
18866	10-30-2018	Omitted	88
18867	10-30-2018	Included	88
18868	10-30-2018	Included	88
18869	10-30-2018	Omitted	88
18870	10-30-2018	Omitted	88
18871	11-13-2018	Omitted	88
18872	11-13-2018	Included	88
18873	11-13-2018	Included	88
18874	11-13-2018	Included	88
18875	11-13-2018	Included	88
18876	11-27-2018	Included	88
18877	11-27-2018	Omitted	88
18878	11-27-2018	Omitted	88
18879	11-27-2018	Omitted	88
18880	11-27-2018	Omitted	88
18881	11-27-2018	Omitted	88
18882	11-27-2018	Omitted	88
18883	11-27-2018	Omitted	88

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18884	12-11-2018	Included	88
18885	12-11-2018	Omitted	88
18886	12-11-2018	Omitted	88
18887	12-18-2018	Omitted	88
18888	12-18-2018	Omitted	88
18889	12-18-2018	Omitted	88
18890	12-18-2018	Omitted	88
18891	12-18-2018	Omitted	88
18892	1- 8-2019	Omitted	88
18893	1- 8-2019	Omitted	88
18894	1- 8-2019	Included	88
18895	1- 8-2019	Omitted	88
18896	1- 8-2019	Omitted	88
18897	1- 8-2019	Omitted	88
18898	1- 8-2019	Included	88
18899	1- 8-2019	Included	88
18900	1-22-2019	Omitted	88
18901	1-22-2019	Omitted	88
18902	1-22-2019	Omitted	88
18903	2- 5-2019	Omitted	88
18904	2- 5-2019	Omitted	88
18905	2- 5-2019	Omitted	88
18906	2- 5-2019	Omitted	88
18907	2-26-2019	Included	88
18908	2-26-2019	Included	88
18909	2-26-2019	Omitted	88
18910	3- 5-2019	Omitted	88
18911	3- 5-2019	Omitted	88
18912	3- 5-2019	Omitted	88
18913	3-19-2019	Omitted	88
18914	3-19-2019	Omitted	88
18915	3-19-2019	Omitted	88
18916	3-19-2019	Omitted	88
18917	3-19-2019	Omitted	88
18918	3-19-2019	Included	88
18919	3-19-2019	Included	88
18920	3-19-2019	Omitted	88
18921	4- 2-2019	Omitted	88
18922	4- 2-2019	Omitted	88
18923	4-30-2019	Omitted	88
18924	4-30-2019	Omitted	88
18925	4-30-2019	Omitted	88
18926	4-30-2019	Omitted	88
18927	4-30-2019	Included	88
18928	4-30-2019	Omitted	88
18929	4-30-2019	Omitted	88
18930	5-14-2019	Omitted	88

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18931	5-14-2019	Omitted	88
18932	5-14-2019	Omitted	88
18933	5-14-2019	Omitted	88
18934	5-14-2019	Omitted	88
18935	5-28-2019	Omitted	88
18936	6-11-2019	Omitted	88
18937	6-25-2019	Omitted	88
18938	6-25-2019	Included	88
18939	6-25-2019	Omitted	88
18940	7- 9-2019	Omitted	88
18941	7- 9-2019	Omitted	88
18942	7- 9-2019	Omitted	88
18943	7- 9-2019	Omitted	88
18944	7- 9-2019	Omitted	88
18945	7- 9-2019	Omitted	88
18946	7-23-2019	Omitted	88
18947	7-23-2019	Omitted	88
18948	7-23-2019	Omitted	88
18949	7-23-2019	Omitted	88
18950	7-23-2019	Omitted	88
18951	7-23-2019	Omitted	88
18952	7-23-2019	Included	88
18953	7-23-2019	Omitted	88
18954	7-23-2019	Omitted	88
18955	7-23-2019	Omitted	88
18956	8- 6-2019	Omitted	88
18957	8- 6-2019	Omitted	88
18958	8- 6-2019	Included	88
18959	8- 8-2019	Omitted	88
18960	8-20-2019	Included	88
18961	8-13-2019	Omitted	88
18962	8-20-2019	Omitted	88
18963	8-20-2019	Omitted	88
18964	8-20-2019	Omitted	88
18965	8-20-2019	Omitted	88
18966	8-20-2019	Included	88
18967	8-20-2019	Omitted	88
18968	9- 3-2019	Included	88
18969	9- 3-2019	Included	88
18970	9- 3-2019	Included	88
18971	9- 3-2019	Included	88
18972	9- 3-2019	Included	88
18973	9- 3-2019	Included	88
18974	9- 3-2019	Included	88
18975	9- 3-2019	Included	88
18976	9- 3-2019	Included	88
18977	9- 3-2019	Omitted	88

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18978	9- 3-2019	Omitted	88
18979	9- 3-2019	Omitted	88
18980	9- 3-2019	Omitted	88
18981	9-17-2019	Omitted	88
18982	9-17-2019	Omitted	88
18983	9-17-2019	Omitted	88
18984	9-17-2019	Omitted	88
18985	10- 1-2019	Omitted	89
18986	10- 1-2019	Omitted	89
18987	10- 1-2019	Omitted	89
18988	10- 1-2019	Omitted	89
18989	10-15-2019	Omitted	89
18990	10-15-2019	Omitted	89
18991	10-15-2019	Omitted	89
18992	10-15-2019	Omitted	89
18993	10-15-2019	Included	89
18994	10-15-2019	Omitted	89
18995	10-29-2019	Omitted	89
18996	10-29-2019	Omitted	89
18997	10-29-2019	Omitted	89
18998	10-29-2019	Included	89
18999	10-29-2019	Omitted	89
19000	10-29-2019	Included	89
19001	11-12-2019	Omitted	89
19002	11-12-2019	Omitted	89
19003	11-26-2019	Omitted	89
19004	11-26-2019	Omitted	89
19005	12-10-2019	Omitted	89
19006	12-10-2019	Omitted	89
19007	12-17-2019	Included	89
19008	12-17-2019	Omitted	89
19009	12-17-2019	Omitted	89
19010	12-17-2019	Omitted	89
19011	12-17-2019	Included	89
19012	1-21-2020	Included	89
19013	1- 7-2020	Omitted	89
19014	1- 7-2020	Omitted	89
19015	1- 7-2020	Omitted	89
19016	1- 7-2020	Included	89
19017	1- 7-2020	Omitted	89
19018	1- 7-2020	Omitted	89
19019	1- 7-2020	Included	89
19020	1-21-2020	Omitted	89
19021	2- 4-2020	Omitted	89
19022	2- 4-2020	Omitted	89
19023	2-18-2020	Omitted	89
19024	2-18-2020	Omitted	89

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19025	2-18-2020	Omitted	89
19026	2-18-2020	Omitted	89
19027	2-18-2020	Omitted	89
19028	2-18-2020	Omitted	89
19029	3- 3-2020	Omitted	89
19030	3- 3-2020	Omitted	89
19031	3- 3-2020	Omitted	89
19032	3- 3-2020	Omitted	89
19033	3- 3-2020	Omitted	89
19034	3- 3-2020	Omitted	89
19037	3-17-2020	Omitted	89
19038	3-17-2020	Omitted	89
19039	3-17-2020	Omitted	89
19040	3-17-2020	Omitted	89
19041	3-17-2020	Omitted	89
19042	3-17-2020	Omitted	89
19043	3-17-2020	Included	89
19044	3-17-2020	Included	89
19046	3-31-2020	Omitted	89
19047	3-31-2020	Omitted	89
19048	3-31-2020	Omitted	89
19049	3-31-2020	Included	89
19052	4-14-2020	Omitted	89
19053	4-28-2020	Omitted	89
19054	4-28-2020	Omitted	89
19057	5-12-2020	Omitted	89
19058	5-12-2020	Omitted	89
19059	5-12-2020	Included	89
19060	5-26-2020	Omitted	89
19063	6-23-2020	Omitted	89
19064	6-23-2020	Omitted	89
19065	6-23-2020	Omitted	89
19066	6-23-2020	Omitted	89
19069	7- 7-2020	Omitted	89
19070	7- 7-2020	Omitted	89
19071	7- 7-2020	Omitted	89
19072	7- 7-2020	Omitted	89
19073	7-21-2020	Omitted	89
19074	7-21-2020	Omitted	89
19075	7-21-2020	Omitted	89
19076	8- 4-2020	Omitted	89
19077	8- 4-2020	Included	89
19078	8- 4-2020	Included	89
19079	8- 4-2020	Included	89
19082	8-18-2020	Included	89
19083	8-18-2020	Included	89
19084	8-18-2020	Omitted	89

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19085	8-18-2020	Included	89
19086	8-18-2020	Omitted	89
19087	8-18-2020	Included	89
19088	8-18-2020	Omitted	89
19092	9- 1-2020	Omitted	89
19093	9- 1-2020	Omitted	89
19094	9- 1-2020	Omitted	89
19095	9-15-2020	Omitted	89
19096	9-15-2020	Omitted	89
19100	9-29-2020	Omitted	89
19101	9-29-2020	Omitted	89
19102	9-29-2020	Omitted	89
19103	9-29-2020	Omitted	89
19104	9-29-2020	Omitted	89
19105	9-29-2020	Omitted	89
18522	5-31-2016	Included	90
19106	10-13-2020	Omitted	90
19110	10-27-2020	Omitted	90
19111	10-27-2020	Omitted	90
19112	10-27-2020	Included	90
19113	10-27-2020	Omitted	90
19114	10-27-2020	Omitted	90
19116	11-10-2020	Omitted	90
19120	12- 8-2020	Omitted	90
19124	12-15-2020	Omitted	90
19128	1- 5-2021	Omitted	90
19129	1- 5-2021	Omitted	90
19130	1- 5-2021	Omitted	90
19131	1- 5-2021	Omitted	90
19132	1-14-2021	Included	90
19133	1-19-2021	Omitted	90
19134	1-19-2021	Included	90
19138	2- 2-2021	Included	90
19139	2-16-2021	Included	90
19143	3- 2-2021	Omitted	90
19144	3- 2-2021	Omitted	90
19145	3- 2-2021	Omitted	90
19146	3- 2-2021	Omitted	90
19147	3- 2-2021	Omitted	90
19148	3- 2-2021	Omitted	90
19149	3- 2-2021	Omitted	90
19150	3- 2-2021	Included	90
19152	3-16-2021	Omitted	90
19153	3-16-2021	Omitted	90
19154	3-16-2021	Included	90
19158	3-30-2021	Omitted	90
19159	3-30-2021	Omitted	90

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19160	3-30-2021	Omitted	90
19161	4-13-2021	Omitted	90
19162	4-13-2021	Omitted	90
19163	4-13-2021	Omitted	90
19164	4-13-2021	Included	90
19165	4-13-2021	Omitted	90
19166	4-13-2021	Included	90
19167	4-13-2021	Included	90
19171	4-27-2021	Omitted	90
19172	4-27-2021	Omitted	90
19173	4-27-2021	Omitted	90
19174	4-27-2021	Omitted	90
19175	4-27-2021	Omitted	90
19176	4-27-2021	Omitted	90
19177	4-27-2021	Omitted	90
19178	4-27-2021	Included	90
19179	5-11-2021	Omitted	90
19180	5-11-2021	Omitted	90
19181	5-11-2021	Omitted	90
19182	5-11-2021	Omitted	90
19183	5-11-2021	Omitted	90
19184	5-11-2021	Omitted	90
19185	5-11-2021	Omitted	90
19186	5-11-2021	Omitted	90
19187	5-11-2021	Included	90
19188	5-11-2021	Included	90
19189	5-11-2021	Included	90
19193	5-25-2021	Omitted	90
19194	6- 8-2021	Omitted	90
19195	6- 8-2021	Omitted	90
19196	6- 8-2021	Omitted	90
19197	6- 8-2021	Included	90
19198	6- 8-2021	Included	90
19199	6- 8-2021	Included	90
19200	6-22-2021	Included	90
19204	7- 7-2021	Omitted	90
19208	7-20-2021	Omitted	90
19209	7-20-2021	Omitted	90
19210	8- 3-2021	Omitted	90
19211	8- 3-2021	Omitted	90
19212	8- 3-2021	Omitted	90
19213	8- 3-2021	Omitted	90
19214	8- 3-2021	Omitted	90
19218	8-17-2021	Omitted	90
19219	8-17-2021	Omitted	90
19220	8-17-2021	Omitted	90
19221	8-17-2021	Omitted	90

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19222	8-24-2021	Omitted	90
19223	8-24-2021	Omitted	90
19224	8-24-2021	Omitted	90
19225	8-31-2021	Included	90
19226	8-31-2021	Included	90
19227	8-31-2021	Omitted	90
19230	9-14-2021	Omitted	90
19231	9-14-2021	Omitted	90
19232	9-14-2021	Omitted	90
19233	9-14-2021	Omitted	90
19234	9-14-2021	Omitted	90
19235	9-28-2021	Omitted	90
19236	9-28-2021	Omitted	90
19237	9-28-2021	Omitted	90
19238	9-28-2021	Omitted	90
19239	10-11-2021	Omitted	91
19240	10-11-2021	Omitted	91
19241	10-11-2021	Omitted	91
19242	10-12-2021	Included	91
19243	10-12-2021	Included	91
19244	10-12-2021	Included	91
19245	10-12-2021	Included	91
19246	10-12-2021	Omitted	91
19247	10-12-2021	Omitted	91
19248	10-26-2021	Omitted	91
19249	10-26-2021	Omitted	91
19250	10-26-2021	Omitted	91
19251	10-26-2021	Omitted	91
19252	10-26-2021	Included	91
19253	11- 8-2021	Omitted	91
19254	11- 8-2021	Omitted	91
19255	11- 8-2021	Omitted	91
19256	11- 9-2021	Included	91
19257	11- 9-2021	Omitted	91
19258	11- 9-2021	Omitted	91
19259	11- 9-2021	Omitted	91
19260	11-23-2021	Included	91
19261	11-23-2021	Omitted	91
19262	11-23-2021	Omitted	91
19263	12- 6-2021	Omitted	91
19264	12- 6-2021	Omitted	91
19265	12- 6-2021	Omitted	91
19266	12- 7-2021	Omitted	91
19267	12- 7-2021	Included	91
19268	12- 7-2021	Included	91
19269	12- 7-2021	Omitted	91
19270	12- 7-2021	Omitted	91

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19271	12- 7-2021	Omitted	91
19272	12- 7-2021	Omitted	91
19273	12- 7-2021	Included	91
19274	12-14-2021	Omitted	91
19275	12-14-2021	Omitted	91
19276	12-14-2021	Included	91
19280	1- 4-2022	Omitted	91
19281	1-19-2022	Included	91
19282	1-19-2022	Included	91
19283	1-31-2022	Omitted	91
19284	1-31-2022	Omitted	91
19285	1-31-2022	Omitted	91
19286	2- 1-2022	Omitted	91
19287	2- 1-2022	Omitted	91
19288	2- 1-2022	Omitted	91
19289	2- 1-2022	Omitted	91
19290	2- 1-2022	Omitted	91
19291	2- 1-2022	Omitted	91
19292	2- 1-2022	Omitted	91
19293	2- 1-2022	Omitted	91
19294	2- 1-2022	Omitted	91
19295	2- 1-2022	Omitted	91
19296	2- 1-2022	Omitted	91
19297	2- 1-2022	Omitted	91
19298	2- 1-2022	Omitted	91
19299	2- 1-2022	Omitted	91
19300	2-15-2022	Included	91
19301	2-15-2022	Included	91
19302	2-28-2022	Omitted	91
19303	2-28-2022	Omitted	91
19304	2-28-2022	Omitted	91
19305	3- 1-2022	Omitted	91
19306	3- 1-2022	Omitted	91
19307	3- 1-2022	Omitted	91
19308	3- 1-2022	Omitted	91
19309	3-15-2022	Included	91
19310	3-15-2022	Omitted	91
19311	3-28-2022	Omitted	91
19312	3-28-2022	Omitted	91
19313	3-28-2022	Omitted	91
19314	3-29-2022	Omitted	91
19315	3-29-2022	Omitted	91
19316	3-29-2022	Omitted	91
19317	3-29-2022	Omitted	91
19318	3-29-2022	Omitted	91
19319	4-12-2022	Omitted	91
19320	4-12-2022	Omitted	91

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19321	4-12-2022	Included	91
19322	4-25-2022	Omitted	91
19323	4-25-2022	Omitted	91
19324	4-25-2022	Omitted	91
19325	4-26-2022	Omitted	91
19326	4-26-2022	Omitted	91
19327	4-26-2022	Included	91
19328	4-26-2022	Omitted	91
19329	4-26-2022	Omitted	91
19330	5-23-2022	Omitted	91
19331	5-23-2022	Omitted	91
19332	5-23-2022	Omitted	91
19333	5-23-2022	Omitted	91
19334	5-24-2022	Omitted	91
19335	5-24-2022	Included	91
19336	6-21-2022	Omitted	91
19337	6-21-2022	Omitted	91
19338	6-21-2022	Omitted	91
19339	6-21-2022	Omitted	91
19340	6-22-2022	Omitted	91
19341	6-22-2022	Omitted	91
19342	6-22-2022	Omitted	91
19343	6-22-2022	Omitted	91
19344	6-22-2022	Omitted	91
19345	6-22-2022	Omitted	91
19346	6-22-2022	Omitted	91
19357	8- 2-2022	Omitted	91
19358	8- 2-2022	Omitted	91
19359	8- 2-2022	Omitted	91
19360	8- 2-2022	Omitted	91
19361	8- 2-2022	Omitted	91
19362	8- 2-2022	Included	91
19363	8-15-2022	Omitted	91
19364	8-15-2022	Omitted	91
19365	8-15-2022	Omitted	91
19366	8-15-2022	Omitted	91
19367	8-16-2022	Omitted	91
19368	8-16-2022	Omitted	91
19369	8-23-2022	Omitted	91
19370	8-30-2022	Omitted	91
19371	8-30-2022	Omitted	91
19372	8-30-2022	Omitted	91
19373	9-12-2022	Omitted	91
19374	9-12-2022	Omitted	91
19375	9-12-2022	Omitted	91
19376	9-12-2022	Omitted	91
19377	9-13-2022	Omitted	91

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19378	9-13-2022	Omitted	91
19379	9-13-2022	Omitted	91
19380	9-13-2022	Omitted	91
19381	9-13-2022	Omitted	91
19382	9-13-2022	Omitted	91
19383	9-13-2022	Omitted	91
19384	9-27-2022	Omitted	91
19385	9-27-2022	Omitted	91
19386	9-27-2022	Omitted	91
019387	10-10-2022	Omitted	92
019388	10-10-2022	Omitted	92
019389	10-10-2022	Omitted	92
019390	10-11-2022	Omitted	92
019391	10-11-2022	Omitted	92
019392	10-25-2022	Omitted	92
019393	10-25-2022	Omitted	92
019394	10-25-2022	Omitted	92
019395	11- 7-2022	Omitted	92
019396	11- 7-2022	Omitted	92
019397	11- 7-2022	Omitted	92
019398	11- 7-2022	Omitted	92
019399	11- 8-2022	Omitted	92
019400	11- 8-2022	Omitted	92
019401	11- 8-2022	Omitted	92
019402	11- 8-2022	Omitted	92
019403	11- 8-2022	Omitted	92
019404	11-22-2022	Omitted	92
019405	12- 5-2022	Omitted	92
019406	12- 5-2022	Omitted	92
019407	12- 5-2022	Omitted	92
019408	12- 5-2022	Omitted	92
019409	12- 6-2022	Included	92
019410	12- 6-2022	Omitted	92
019411	12- 6-2022	Omitted	92
019412	12- 6-2022	Omitted	92
019413	12- 6-2022	Omitted	92
019414	12- 6-2022	Omitted	92
019415	12-13-2022	Omitted	92
019416	12-13-2022	Omitted	92
019417	12-13-2022	Omitted	92
019418	12-13-2022	Omitted	92
019419	12-13-2022	Omitted	92
019420	12-13-2022	Included	92
019421	12-23-2022	Omitted	92
019422	1- 3-2023	Omitted	92
019423	1- 3-2023	Omitted	92
019424	1- 3-2023	Omitted	92

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
019425	1- 3-2023	Omitted	92
019426	1- 3-2023	Omitted	92
019427	1- 3-2023	Omitted	92
019428	1-30-2023	Omitted	92
019429	1-30-2023	Omitted	92
019430	1-30-2023	Omitted	92
019431	1-30-2023	Omitted	92
019432	1-31-2023	Omitted	92
019433	1-31-2023	Included	92
019434	1-31-2023	Omitted	92
019435	2- 7-2023	Included	92
019436	2- 7-2023	Omitted	92
019437	2- 7-2023	Omitted	92
019438	2-27-2023	Omitted	92
019439	2-27-2023	Omitted	92
019440	2-27-2023	Omitted	92
019441	2-28-2023	Omitted	92
019442	2-28-2023	Omitted	92
019443	3-14-2023	Included	92
019444	3-14-2023	Omitted	92
019445	3-27-2023	Omitted	92
019446	3-27-2023	Omitted	92
019447	3-27-2023	Omitted	92
019448	3-27-2023	Omitted	92
019449	3-28-2023	Omitted	92
019450	3-28-2023	Omitted	92
019451	3-28-2023	Included	92
019452	3-28-2023	Included	92
Res. of 05-23-2023(1)	5-23-2023	Included	92
019453	4-11-2023	Omitted	92
019454	4-11-2023	Omitted	92
019455	4-11-2023	Omitted	92
019456	4-11-2023	Omitted	92
019457	4-11-2023	Omitted	92
019458	4-11-2023	Omitted	92
019459	4-11-2023	Omitted	92
019460	4-11-2023	Omitted	92
019461	4-11-2023	Omitted	92
019462	4-11-2023	Omitted	92
019463	4-11-2023	Omitted	92
019464	4-11-2023	Omitted	92
019465	4-11-2023	Omitted	92
019466	4-11-2023	Omitted	92
019467	4-11-2023	Omitted	92
019468	4-11-2023	Omitted	92
019469	4-11-2023	Omitted	92
019470	4-11-2023	Omitted	92

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
019471	4-11-2023	Omitted	92
019472	4-11-2023	Omitted	92
019473	4-11-2023	Omitted	92
019474	4-11-2023	Omitted	92
019475	4-24-2023	Omitted	92
019476	4-24-2023	Omitted	92
019477	4-24-2023	Omitted	92
019478	4-24-2023	Omitted	92
019479	4-25-2023	Omitted	92
019480	4-25-2023	Omitted	92
019481	4-25-2023	Omitted	92
019482	4-25-2023	Omitted	92
019483	4-25-2023	Omitted	92
019484	4-25-2023	Omitted	92
019485	5- 8-2023	Omitted	92
019486	5- 9-2023	Omitted	92
019487	5- 9-2023	Omitted	92
019488	5- 9-2023	Omitted	92
019489	5- 9-2023	Omitted	92
019490	5- 9-2023	Omitted	92
019491	5- 9-2023	Omitted	92
019492	5- 9-2023	Omitted	92
019493	5- 9-2023	Omitted	92
019494	5- 9-2023	Omitted	92
019495	5- 9-2023	Omitted	92
019496	5- 9-2023	Omitted	92
019497	5-22-2023	Omitted	92
019498	5-22-2023	Omitted	92
019499	5-23-2023	Omitted	92
019500	5-23-2023	Omitted	92
019501	5-23-2023	Omitted	92
019502	5-23-2023	Omitted	92
019503	5-23-2023	Omitted	92
019504	5-23-2023	Omitted	92
019505	5-23-2023	Omitted	92
019506	5-23-2023	Omitted	92
019507	5-23-2023	Included	92
019508	5-23-2022	Included	92
019509	6- 6-2023	Omitted	92
019510	6- 6-2023	Omitted	92
019511	6- 6-2023	Omitted	92
019512	6- 6-2023	Omitted	92
019513	6- 6-2023	Omitted	92
019514	6- 6-2023	Omitted	92
019515	6-20-2023	Omitted	92
019516	6-20-2023	Omitted	92
019517	6-20-2023	Included	92

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
019518	6-20-2023	Omitted	92
019519	6-20-2023	Omitted	92
019520	6-20-2023	Omitted	92
019521	7- 5-2023	Included	92
019522	7- 5-2023	Omitted	92
019523	7- 5-2023	Omitted	92
019524	7-17-2023	Omitted	92
019525	7-17-2023	Omitted	92
019526	7-18-2023	Omitted	92
019527	7-18-2023	Omitted	92
019528	8- 1-2023	Included	92
019529	8-14-2023	Omitted	92
019530	8-14-2023	Omitted	92
019531	8-15-2023	Omitted	92
019532	8-15-2023	Included	92
019533	8-15;2023	Vetoed	92
019534	8-15-2023	Omitted	92
019535	8-29-2023	Included	92
019536	9-12-2023	Omitted	92
019537	9-12-2023	Omitted	92
019538	9-12-2023	Omitted	92
019539	9-12-2023	Omitted	92
019540	9-12-2023	Omitted	92
019541	9-26-2023	Included	92
019542	9-26-2023	Omitted	92
019543	9-26-2023	Omitted	92
019546	10-10-2023	Included	92
019547	10-10-2023	Omitted	92
019548	10-10-2023	Included	92
019544	10-10-2023	Omitted	93
019545	10-10-2023	Omitted	93
019549	10-24-2023	Omitted	93
019550	11- 7-2023	Omitted	93
019551	11- 7-2023	Omitted	93
019552	11- 7-2023	Included	93
019553	11- 7-2023	Omitted	93
019554	11- 7-2023	Omitted	93
019555	11- 7-2023	Omitted	93
019556	11- 7-2023	Omitted	93
019557	11- 7-2023	Omitted	93
019558	11- 7-2023	Omitted	93
019559	11- 7-2023	Omitted	93
019560	11- 7-2023	Omitted	93
019561	11- 7-2023	Omitted	93
019562	11-21-2023	Omitted	93
019563	11-21-2023	Omitted	93
019564	11-21-2023	Omitted	93

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
019565	11-21-2023	Omitted	93
019566	11-21-2023	Omitted	93
019567	11-21-2023	Omitted	93
019568	11-21-2023	Included	93
019569	11-21-2023	Included	93
019570	11-21-2023	Omitted	93
019571	12- 5-2023	Omitted	93
019572	12- 5-2023	Omitted	93
019573	12- 5-2023	Omitted	93
019574	12- 5-2023	Omitted	93
019575	12- 5-2023	Included	93
019576	12- 5-2023	Included	93
019577	12- 5-2023	Omitted	93
019578	12-12-2023	Included	93
019579	12-12-2023	Omitted	93
019580	12-12-2023	Omitted	93
019581	12-12-2023	Included	93
019582	1- 3-2024	Omitted	93
019583	1- 3-2024	Omitted	93
019584	1-17-2024	Omitted	93
019585	1-17-2024	Omitted	93
019586	1-17-2024	Omitted	93
019587	1-30-2024	Omitted	93
019588	1-30-2024	Omitted	93
019589	1-30-2024	Omitted	93
019590	2-13-2024	Included	93
019591	2-13-2024	Omitted	93
019592	2-13-2024	Omitted	93
019593	2-13-2024	Omitted	93
019594	2-26-2024	Omitted	93
019595	2-27-2024	Omitted	93
019596	2-27-2024	Omitted	93
019597	2-27-2024	Omitted	93
019598	3-12-2024	Omitted	93
019599	3-12-2024	Omitted	93
019600	3-12-2024	Omitted	93
019601	3-12-2024	Included	93
019602	3-12-2024	Included	93
019603	3-25-2024	Omitted	93
019604	3-25-2024	Omitted	93
019605	3-26-2024	Omitted	93
019606	3-26-2024	Omitted	93
019607	3-26-2024	Omitted	93
019608	3-26-2024	Included	93
019609	3-26-2024	Omitted	93
019610	4- 9-2024	Omitted	93
019611	4-22-2024	Omitted	93

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
019612	4-22-2024	Omitted	93
019613	4-23-2024	Included	93
019614	4-23-2024	Omitted	93
019615	4-23-2024	Omitted	93
019616	4-23-2024	Included	93
019617	4-23-2024	Omitted	93
019618	4-23-2024	Omitted	93
019619	4-23-2024	Omitted	93
019620	4-23-2024	Included	93
019621	5- 7-2024	Omitted	93
019622	5- 7-2024	Omitted	93
019623	5- 7-2024	Omitted	93
019624	5- 7-2024	Omitted	93
019625	5- 7-2024	Omitted	93
019626	5- 7-2024	Included	93
019627	5- 7-2024	Omitted	93
019628	5- 7-2024	Omitted	93
019629	5- 7-2024	Omitted	93
019630	5- 7-2024	Omitted	93
019631	5- 7-2024	Omitted	93
019632	5- 7-2024	Included	93
019633	5- 7-2024	Omitted	93
019634	5-20-2024	Omitted	93
019635	5-20-2024	Omitted	93
019636	5-21-2024	Included	93
019637	6- 4-2024	Omitted	93
019638	6-10-2024	Omitted	93
019639	6-10-2024	Omitted	93
019640	6-11-2024	Included	93
019641	6-11-2024	Included	93
019642	6-11-2024	Included	93
019643	6-11-2024	Included	93
019644	6-11-2024	Included	93
019645	6-11-2024	Omitted	93
019646	6-11-2024	Omitted	93
019647	7- 1-2024	Omitted	93
019648	7- 2-2024	Omitted	93
019649	7- 2-2024	Omitted	93
019650	7- 2-2024	Omitted	93
019651	7- 2-2024	Omitted	93
019652	7- 2-2024	Omitted	93
019653	7- 2-2024	Omitted	93
019654	7-16-2024	Omitted	93
019655	7-29-2024	Omitted	93
019656	7-30-2024	Omitted	93
019657	7-30-2024	Omitted	93
019658	8-13-2024	Omitted	93

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
019659	8-13-2024	Omitted	93
019660	8-13-2024	Included	93
019661	8-13-2024	Omitted	93
019662	8-20-2024	Omitted	93
019663	8-26-2024	Omitted	93
019664	8-27-2024	Included	93
019665	8-27-2024	Included	93
019666	8-27-2024	Included	93
019667	8-27-2024	Omitted	93
019668	9-10-2024	Omitted	93
019669	9-10-2024	Omitted	93
019670	9-10-2024	Omitted	93
019671	9-10-2024	Omitted	93
019672	9-23-2024	Omitted	93
019673	9-24-2024	Omitted	93
019674	9-24-2024	Omitted	93
019675	9-24-2024	Included	93
019676	10-21-2024	Omitted	94
019677	10-22-2024	Omitted	94
019678	11-12-2024	Omitted	94
019679	11-12-2024	Omitted	94
019680	11-12-2024	Omitted	94
019681	11-12-2024	Omitted	94
019682	11-12-2024	Omitted	94
019683	11-12-2024	Omitted	94
019684	11-12-2024	Omitted	94
019685	11-18-2024	Omitted	94
019686	11-19-2024	Omitted	94
019687	11-19-2024	Omitted	94
019688	11-19-2024	Included	94
019689	11-19-2024	Included	94
019690	12- 3-2024	Omitted	94
019691	12- 3-2024	Omitted	94
019692	12- 3-2024	Omitted	94
019693	12- 3-2024	Omitted	94
019694	12-16-2024	Omitted	94
019695	12-17-2024	Included	94
019696	12-17-2024	Included	94
019697	12-17-2024	Omitted	94
019698	12-17-2024	Omitted	94
019699	12-17-2024	Omitted	94
019700	12-17-2024	Omitted	94
019701	12-17-2024	Omitted	94
019702	12-17-2024	Omitted	94
019704	1- 7-2025	Included	94
019705	1- 7-2025	Included	94
019706	1-22-2025	Included	94

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
019707	2- 4-2025	Omitted	94
019708	3- 4-2025	Omitted	94
019709	3- 4-2025	Omitted	94
019710	3- 4-2025	Included	94
019711	3- 4-2025	Included	94
019712	3-18-2025	Omitted	94
019713	3-18-2025	Omitted	94
019714	3-18-2025	Omitted	94
019715	3-18-2025	Omitted	94
019716	3-18-2025	Omitted	94
019717	3-18-2025	Omitted	94
019718	4-15-2025	Omitted	94
019719	4-15-2025	Omitted	94
019720	4-15-2025	Omitted	94
019721	4-15-2025	Omitted	94
019722	4-15-2025	Omitted	94
019723	4-15-2025	Omitted	94
019724	4-15-2025	Omitted	94
019725	4-29-2025	Omitted	94
019726	4-29-2025	Omitted	94
019727	4-29-2025	Omitted	94
019728	5-13-2025	Omitted	94
019729	5-13-2025	Omitted	94
019730	5-13-2025	Omitted	94
019731	5-13-2025	Omitted	94
019732	5-13-2025	Omitted	94
019733	5-13-2025	Omitted	94
019734	5-28-2025	Included	94
019735	5-28-2025	Omitted	94
019736	5-28-2025	Omitted	94
019737	5-28-2025	Omitted	94
019738	5-28-2025	Included	94
019739	6-10-2025	Omitted	94
019740	6-24-2025	Omitted	94
019741	6-24-2025	Omitted	94
019742	6-24-2025	Omitted	94
019743	6-24-2025	Omitted	94
019744	6-24-2025	Omitted	94
019745	6-24-2025	Omitted	94
019746	6-24-2025	Omitted	94
019747	7- 8-2025	Omitted	94
019748	7- 8-2025	Omitted	94
019749	7- 8-2025	Omitted	94
019750	7-22-2025	Omitted	94
019751	7-22-2025	Omitted	94
019752	7-22-2025	Omitted	94
019753	7-22-2025	Omitted	94

Ord. No.	Date Adopted	Included/ Omitted	Supp. No.
019754	7-22-2025	Omitted	94
019755	7-22-2025	Omitted	94
019756	7-22-2025	Included	94
019757	7-22-2025	Included	94
019758	7-22-2025	Included	94
019759	7-22-2025	Included	94
019760	7-22-2025	Included	94
019761	7-22-2025	Included	94
019762	7-22-2025	Included	94
019763	7-22-2025	Included	94
019764	7-22-2025	Included	94
019765	7-22-2025	Included	94
019766	8- 5-2025	Included	94
019767	8- 5-2025	Omitted	94
019768	8- 5-2025	Included	94
019769	8-19-2025	Omitted	94
019770	8-19-2025	Included	94
019771	8-19-2025	Included	94
019772	8-19-2025	Omitted	94
019773	8-19-2025	Omitted	94
019774	8-19-2025	Included	94
019775	8-19-2025	Included	94
019776	8-19-2025	Included	94
019777	8-19-2025	Included	94
019778	8-19-2025	Included	94
019779	8-19-2025	Included	94
019780	8-19-2025	Included	94
019781	8-19-2025	Included	94
019782	8-19-2025	Included	94
019783	8-19-2025	Included	94

CHARTER

(Incorporating amendments approved by the voters on May 11, 2013.)

Article I INCORPORATION AND POWERS

Section 1.1 CONTINUING CORPORATE EXISTENCE.

The City of El Paso shall continue as a body politic, exercising all powers of local self-government which are or come to be conferred upon constitutional home rule cities in the State of Texas, and will exercise these powers as a municipal corporation, subject to the Constitution and the laws of the State of Texas. Specific mention of particular powers shall not be construed as limiting in any way the general powers granted to the City by this Charter. The corporate limits shall be those which are or may be established lawfully.

Section 1.2 DEFINITIONS.

As used in this Charter, the term "laws of Texas" shall include the Constitution and statutes of the State of Texas, the common law as it exists in the State of Texas, and appropriate case law. As used herein, "State" shall mean the State of Texas; "City" shall mean the City of El Paso; "City Council" or "Council" shall mean the Mayor and Representatives of the City of El Paso, with the Mayor being a non-voting member of Council; provided, however, the Mayor shall not be considered a member of Council for items and matters requiring a super-majority vote of all members of the governing body; and "department" shall mean any City agency, office, bureau or other organizational unit.

(Ord. No. 18401, Amd. No. 1, 8-11-2015, Election of 11-3-2015)

Section 1.3 INTERGOVERNMENTAL RELATIONS.

Nothing in this Charter shall be construed as a bar upon the consolidation of City departments, either with one another or with agencies of government of the County of El Paso or other political subdivisions within El Paso County. Further, nothing in this Charter shall be construed as a bar upon consolidation between the City and the County.

Section 1.4 PUBLIC UTILITY REGULATION.

The City shall have all authority permitted under the laws of Texas to regulate and fix the reasonable rates to be charged by public utility corporations engaged in supplying gas, electricity, water, sewerage or any other convenience or commodity to consumers, provided such rates shall be fixed, in accordance with the applicable laws of Texas, after giving the company an opportunity to be heard. The City shall have access to any company books, records or accounts necessary to exercise this power. Whenever a public utility company, railroad company, telegraph company, irrigation company or any other public corporation has an obligation imposed by franchise or by any lawful order of the City, the City shall cause written notice to be given to an appropriate official in the company stating the act required to be performed and specifying a reasonable time for performance. Failure to comply in timely fashion shall subject the company to such penalty as may be provided by ordinance.

Section 1.5 APPLICATION FOR REMEDY PREREQUISITE TO SUIT AGAINST CITY.

No suit shall be instituted against the City unless the claimant shall aver and prove that, previous to filing the original petition, the claim was presented to the Council and the Council failed either to grant or act upon the claim in a timely fashion. This provision shall not apply in instances in which injunction or any other of the extraordinary writs are sought.

Article II NOMINATIONS AND ELECTIONS

Section 2.1 CITY ELECTIONS.

A. Regular Elections. The regular City elections to be held in 2015 and 2017 shall be held on the uniform date established in the Texas Election Code during the month of May with a run-off election to be held on the earliest date practicable in accordance with the law. These terms of elected office commence on the last Tuesday in June, or if necessary to comply with state or federal law, the Tuesday following the canvass of a run-off election, whichever is later. Beginning in 2018, the regular City elections shall be held on the uniform date established in the Texas Election Code during the month of November with a run-off election to be held on the earliest date practicable in accordance with the law. All terms of elected office beginning with the November 2018 election commence on the first Tuesday in January following the election, or if necessary to comply with state or federal law, the Tuesday following the canvass of a run-off election, whichever is later.

B. Officers Elected. The qualified voters of El Paso shall, as necessary to fill expired terms, elect the following officers, as provided herein and under Section 2.4 A, at the regular elections: A Mayor, eight District Representatives, and Judges of the Municipal Courts. Each Representative shall be elected from a district and the Mayor and other officers shall be elected from the City at large. The Judges of the Municipal Courts, the Mayor, and the District Representatives from districts numbers 2, 3, 4 and 7 taking office in June 2013 shall serve four year terms. Commencing in June 2015, the District Representatives from districts numbers 1, 5, 6 and 8 shall be elected to terms greater than three years but less than four years that conform to the change made in subsection A to the start of the term and the new election date beginning in November 2018, and they shall thereafter be elected to four-year terms. Commencing in June 2017, the Judges of the Municipal Courts, the Mayor, and the District Representatives from districts numbers 2, 3, 4 and 7 shall be elected to terms greater than three years but less than four years that conform to the change made in subsection A to the start of the term and the new election date beginning in November 2020, and they shall thereafter be elected to four-year terms. Each officer shall hold office during the term for which elected and established herein and until the election and qualification of a successor, unless sooner removed in any manner provided in this Charter.

C. Recall. Any elected officer of the City may be removed from office, for stated reasons, by those voters who are qualified to vote for a successor to such office.

The Council shall enact, within sixty days of the adoption of this Charter, an ordinance providing for:

1. The general conduct of recall elections;

2. Receipt, by the City Clerk, prior to the conduct of any recall election of a petition bearing authentic signatures of a number of registered voters equal to at least twenty percent of the total number of votes cast in the election of the officer whose recall is sought;

3. Completion of a recall petition within sixty days of filing notice with the City Clerk of intent to circulate a petition for recall; and

4. Recall petitions to specify the reasons for which recall is sought.

No recall petition shall be filed against any elected officer within six months after taking office, nor within twelve months of the end of the elected officer's term of office, nor in case of an officer who was the subject of an unsuccessful recall election, until six months after that election. Should the elected officer, whose recall is sought, resign, no recall election shall be held.

D. Vacancies and Removal from Office. An elective office also shall become vacant upon death, resignation, forfeiture of or removal from office of the officer in any manner authorized by law. Any elected City official shall be subject to removal from office if that official:

1. Lacks, at any time during the term of office, any qualification or requirement prescribed by this Charter or other law;

2. Is convicted of any felony, or of a misdemeanor involving moral turpitude;

3. Violates the City Ethics Ordinance;

4. Makes any willful false statements or commits any fraud preventing the impartial execution of the provisions of this charter;

5. Knowingly and willfully solicits or assists in soliciting any contributions from any political party to be used in conjunction with any City election of City officers; or

6. In the case of the Mayor or a Representative, fails to attend three consecutive regular meetings of the Council without being excused by the Council. A Representative shall forfeit office if, during the term of office, that Representative establishes residence outside the Council district from which elected, unless otherwise provided by law.

E. Qualified Voters. All citizens qualified by the laws of Texas to vote in the City and who satisfy the requirements for registration shall be qualified voters of the City.

Section 2.2 NOMINATIONS.

A. Qualifications for Office. In addition to the requirements prescribed by law, the following shall be the qualifications for City elective offices:

1. Candidates for Mayor shall have been City residents for the 12 months next preceding the election, and must be at least 21 years of age;

2. Candidates for Representative shall have been City residents for the 12 months next preceding the election, and residents of the district for 6 months next preceding the election, and must be at least 21 years of age;

3. Candidates for Municipal Judge shall have been City residents for the 12 months next preceding the election, licensed to practice law in Texas, and at least 21 years of age;

4. Candidates for Mayor and Representative shall be eligible for that elective office only when holding that office for a term of four years shall not result in the candidate exceeding the term limitation established in Section 2.2 C.

B. Indebtedness: Financial Disclosure.

1. No person shall be eligible for any elective office who, at the time of taking office, whether by virtue of election or appointment, is indebted to the City in any sum of money on judgment, contract or valid tax levy or assessment.

2. Each person elected to City office, as a condition to being administered the oath of office, shall have filed with the City Clerk a signed, sworn statement disclosing:

a. Where, by whom, and by what specific capacity that person and that person's spouse, if any, is employed or self-employed;

b. Membership on boards of directors of corporations, whether they are organized for profit or not, of that person and that person's spouse, if any;

c. Partnership interest of that person and that person's spouse, if any;

d. The names and addresses of any business in which that person or that person's spouse, if any, has a financial investment; and

e. Ownership of real property of that person and of that person's spouse, if any.

3. No person submitting such a statement of financial disclosure must indicate therein the extent of financial involvement in any investments.

4. Each person subject to this provision shall file with the City Clerk a signed, sworn, updated revision of this statement, annually, while in office.

C. Limitation. No Mayor or Representative may hold such office for more than a total of ten years throughout their lifetime.

D. Filing for Candidacy. To become a candidate for elective office a person must file a sworn application with the City Clerk, in accordance with the laws of Texas for nonpartisan or independent candidates, and must accompany the application with a filing fee of $500.00 for the office of Mayor and $250.00 for any other office.

E. Petition for Candidacy. In lieu of the payment of a filing fee, any person qualified for an elective office may become a candidate by petition of 25 qualified voters who are eligible to vote for

that candidate or such other greater number of qualified voters as may be required by state law. The signed petitions shall be filed with the City Clerk at the time of filing for candidacy. Each signer next to his signature shall indicate voter registration number, date of signing and place of residence. Within five days after the filing of a nominating petition, the City Clerk shall notify the candidate and the person who filed the petition, if other than the candidate, whether it satisfies the requirements prescribed by this Charter. If a petition is found insufficient, the City Clerk shall return it immediately to the person who filed it with a statement certifying wherein it is insufficient. Within the regular time for filing petitions a corrected petition may be filed for the same candidate.

F. Non-Partisan Elections. Candidates for City elective office shall not be nominated by primary elections.

Section 2.3 ELECTIONS.

A. Conduct of Elections. All elections shall be held in accordance with the laws of Texas. Notwithstanding any other provision of this Charter, when a special election is required by a provision of this Charter to be ordered, it will be scheduled for the next uniform election date as specified in state law or the date of the next election that will be conducted by the County Elections Administrator, as directed by the Council.

B. Names on Ballots. The names of all candidates for all elective city offices, except those who have withdrawn, died or become ineligible, shall be printed without party designation or symbol on the official ballots. If two or more candidates have the same surname or surnames so similar as to be likely to cause confusion, their residence addresses shall be printed with their names on the ballot.

Section 2.4 REPRESENTATIVE DISTRICTS; ADJUSTMENT OF DISTRICTS.

A. Number of Districts. There shall be eight Representative districts. The Representative districts shall be of substantially equal population. One Representative shall be elected from each of the Representative districts established by the Council. Each district shall be numbered; for example, "Representative District No. 1." At such time when the results of a decennial United States census shows the population of the City to be one million or more, the Council may take the appropriate action to increase the number of District Representatives from eight to ten.

B. Districting Commission. On or before September 1 next following the publication of the results of each decennial United States census, each Representative shall nominate one qualified voter from his or her district and the Mayor shall nominate one qualified voter from the City at large. Upon approval by the Council, these nominees shall comprise the Districting Commission. The Commission shall elect its own presiding officer. The nominees chosen shall not serve the City in any other capacity, whether appointive or elective, nor shall they hold any other elective public office. The Commission shall make recommendations to the Council concerning adjustments of the boundaries of the Representative districts. Upon receiving the Commission's recommendations, the Council shall review the population of each district, and as soon as possible, shall change the boundaries thereof as necessary to insure substantial equality in the populations of the districts. In addition, the Council may change the boundaries of the Representative districts more often than after each decennial census, as necessary to insure substantial equality in the populations of such Representative districts. All such changes shall be made in a manner which complies with the constitutional principles and laws governing voting rights of the United States and Texas.

Article III THE CITY COUNCIL

Section 3.1 CREATION; COMPOSITION; POWERS AND DUTIES.

There shall be a City Council consisting of District Representatives and the Mayor. The Coun-

cil shall have legislative powers, and the power and duty to select, direct, and regularly evaluate the City Manager, as well as such other and specific powers and duties as may be provided by law or this Charter. Each Representative shall have the discretion and sole authority to appoint and remove a legislative aide.

Section 3.2 SALARIES.

Prior to September 1, 2019, the annual base salary of the District Representatives shall be set at twenty-nine thousand dollars, and the annual base salary of the Mayor shall be set at forty-five thousand dollars.

Commencing on September 1, 2019, the annual base salary of the District Representatives shall be set at the amount equal to the 2017 El Paso County area median household income as established by the United States Department of Housing and Urban Development or successor agency ($45,300), and the annual base salary of the Mayor shall be set at one and one-half this amount ($67,950). Thereafter, on September 1, the base salaries will be revised annually and be set according to the above formula based on the prior fiscal year median income for El Paso County.
(Ord. No. 18812, § 1, 7-10-2018, Election of 11-6-2018)

Section 3.3 PROHIBITIONS.

A. Other Public Employment. No Council member may hold any other compensated public office or public employment, and no former Council member shall hold any compensated City position until one year has elapsed following the expiration of the term for which that member was elected to the Council.

B. Nepotism. No person shall be appointed as City Manager or to any City board or commission who, at the time of appointment, is related in the first or second degree of consanguinity or in the first or second degree of affinity to a member of the Council. The words "consanguinity" and "affinity" are, in popular usage, often referred to, respectively, as "blood" and "marriage."

C. "Lame Duck" Elected Officers Not to Make Appointments. From the date of any City general election until inauguration of those elected, neither the Mayor nor the City Council shall make any appointment of a City Manager, or any appointments to any standing or special public boards, commissions or committees of the City, except when in conflict with State law or when due process rights of employees or citizens would be compromised.

Section 3.4 DETERMINATION OF ELECTIONS AND QUALIFICATIONS.

Except as provided in Article II, Section 2.1 C, the Council shall be the judge of the election and qualifications of its members and of other elected City officials and of the grounds for removal from office and for that purpose shall have the power to subpoena witnesses, administer oaths, and require the production of evidence. An officer, including a Representative or the Mayor, charged with conduct constituting grounds for removal from office shall be entitled to a public hearing, and notice shall be published in one or more newspapers of general, daily circulation in the city at least one week in advance of the hearing. Decisions made by the Council under this section shall be subject to review by the courts.

Section 3.5 CITY COUNCIL PROCEDURES AND RULES.

A. Meetings. Regular meetings of the Council shall be held in Council chambers no less than once every other week at such times as may be prescribed by resolution, except that Council may reschedule meetings by resolution to allow for City holidays, but must have no less than two regular meetings per month. The Mayor may cancel a meeting if necessary due to a Federal, State or Local declared emergency. Special meetings and informal work sessions of the Council shall be called by the Mayor or a majority of the entire Council by giving written notice to the City Clerk. All meetings of the Council and of any committees thereof shall be held as permitted by the Texas Open Meetings Act.

B. Parliamentary Procedure. At the beginning of each term the Council shall adopt rules of order, and should the Council fail to do this, then Roberts Rules of Order, Revised, shall control until such time as the Council adopts some other rules of order. In any event, copies of rules of order employed by the Council shall be available, in the office of the City Clerk, for examination by interested persons. The Mayor, with the advice and consent of the Representatives, shall designate a Municipal Parliamentarian and Alternate Municipal Parliamentarians, but no members of the Council may hold those offices. The Council must keep minutes of its open proceedings, and these shall be a public record. It shall also have power to compel the attendance of absent members and, by the favorable vote of a majority of the entire Council, may expel a member from a Council meeting for disorderly conduct or serious violation of its rules and may order that member to be physically removed from the meeting.

C. Quorum. Except as otherwise provided in this Charter, a quorum to do business shall consist in more than one-half of the number of members of the Council, including the Mayor; provided, however, that a lesser number may adjourn until a specific time and compel the attendance of absent members, in the manner prescribed by ordinance.

D. Voting. No action of the Council, except as otherwise provided in this Charter, shall be valid or binding unless adopted by the affirmative vote of a majority of the members present and voting. Ordinances or resolutions that impose taxes, grant franchises or leases, or authorize conveyances shall not be valid unless adopted by a majority of the entire Council.

E. Veto. Ordinances and resolutions finally adopted by the Council shall be filed in the office of the City Clerk and signed by the Mayor before they take effect. If the Mayor vetoes the ordinance or resolution, reasons shall be set forth by the Mayor in writing, and the ordinance or resolution with those reasons shall be returned to the Council. However, the Mayor shall not have any veto power over any City Council action which removes the City Manager or the City Attorney. To override the Mayor's veto, three fourths of all of the Representatives must vote in favor of the returned ordinance or resolution, in which event the adopted ordinance or resolution shall become law. If the Mayor shall either fail to approve or object in writing to any adopted ordinance or resolution within five days after it has been filed with the City Clerk, exclusive of the day of filing, it shall become law.

(Ord. No. 18401, Amds. Nos. 3, 4, 5, 8-11-2015, Election of 11-3-2015; Res. of 05-23-2023(1), Amds. C, D, Election of 5-6-2023)

Section 3.6 LEGISLATIVE COMMITTEES.

A. The Representatives may resolve themselves into committees, both standing and special, when this is convenient for the conduct of legislative business, including the investigative powers described in Section 3.8. Rules governing the organization and procedures of these committees shall be made by the Council, and the Mayor shall have no power to veto any of those rules except upon grounds of illegality.

B. The Council shall establish a Financial Oversight and Audit Committee "FOAC" for the purpose of providing legislative oversight of the function of the Internal Auditor, to review the financial policies of the City, and to formulate recommendations for the City Council regarding City finances and other matters referred by the City Council or City Manager. The FOAC shall be comprised of four members of the City Council, the Chief Internal Auditor, and the City Manager or designee and shall meet when needed, at least quarterly.

Section 3.7 APPOINTMENTS.

A. Appointment and Removal of the City Attorney. The City Council by a majority vote of its total membership shall appoint a City Attorney and fix the City Attorney's compensation. The City Attorney shall be appointed solely on the basis of legal experience and qualifications. The City Attorney may be removed by a resolution

approved by a majority vote of the total membership of the City Council. Assistant City Attorneys shall be appointed by, and will report to and work at the direction and under the supervision of the City Attorney.

B. Boards and Commissions. Except where otherwise provided in this Charter, or by the laws of Texas, or of the United States, appointments to and removals from standing or special public boards, commissions or committees of the City shall be made by the Council. The Council is required to ensure that appointments are distributed uniformly among Representatives.
(Ord. No. 18401, Amd. No. 5, 8-11-2015, Election of 11-3-2015)

Section 3.8 INVESTIGATIVE POWERS.

The Council shall have the express power to inquire into the official conduct of any department, officer or employee of the City, and for that purpose shall have the power to administer oaths, subpoena witnesses, and compel the production of evidence material to the inquiry. The Council shall provide by ordinance penalties for contempt in failing or refusing to obey any such subpoena or to produce any such evidence, and shall have the power to punish any such contempt in the manner provided by such ordinance. The Council must respect the dignity, rights and liberties of all persons in exercising these investigative powers. These investigative powers shall not extend to those matters covered under Civil Service nor shall this power be used to pursue criminal matters, other than those over which the Council has legislative power.

Section 3.9 ORDINANCES IN GENERAL.

A. Form and Introduction. Ordinances and resolutions shall be introduced at Council meetings only in written form; but amendments to ordinances and resolutions may be made orally at the same meetings. No ordinance shall concern more than one subject, and that shall be expressed clearly in the title. The enacting clause of all ordinances shall read: "Be it ordained by the City Council of the City of El Paso." Any ordinance which repeals or amends an existing ordinance or other part of the City Code shall summarize the ordinance, sections or subsections to be repealed or amended.

B. Legislative Procedure. Except as provided in Section 3.13, an ordinance may be introduced by any Council member at any meeting of the Council. A proposed ordinance must be filed with the City Clerk in sufficient time for inclusion on the agenda for the Council meeting at which it is to be introduced. Upon such filing the City Clerk shall distribute copies to each member of the Council and to the City Manager. No ordinance shall be adopted finally except at a regular open meeting of the Council following notice, publication, and a public hearing. The notice shall contain:

1. The proposed ordinance or a brief summary thereof;

2. The places where copies of it have been filed and the times when they are available for public examination; and

3. The time and place for the public hearing.

The notice shall be published by any contemporary means of information sharing, including but not limited to publication in a newspaper of general circulation in the City or placement on a website at least five days prior to the public hearing. The hearing may be held by a designated Council committee or the Council separately or in connection with any Council meeting and may be adjourned to a specified time. All interested persons present shall have an opportunity to be heard. As soon as practicable after adoption of any ordinance, the City Clerk shall publish it again, with notice of its adoption, in abstract form, by any contemporary means of information sharing. These abstracts must state, at a minimum, the purpose of the ordinance and, where penal, the penalty provided. In any event, the publication must be written so as to be understood by an average person.

C. Actions Requiring Ordinances. The Council may exercise the following powers by ordinance only:

1. Authorize the conveyance of any City real property;

2. Adopt or amend any administrative code and establish, abolish, alter or combine any City departments, so long as such action is not in conflict with this Charter;

3. Amend, extend, or repeal any ordinance previously adopted;

4. Prescribe a fine or penalty or establish any rule or regulation for the violation of which a fine or other penalty is imposed;

5. Adopt Civil Service Rules.

(Res. of 05-23-2023(1), Amd. E, Election of 5-6-2023)

Section 3.10 EMERGENCY ORDINANCES.

A. Limitation. To meet a public emergency affecting life, health, property, or the public peace, the Council may adopt one or more emergency ordinances, but such ordinances may not levy taxes, grant, renew or extend a franchise, authorize a conveyance of real property, or authorize the borrowing of money.

B. Procedures. An emergency ordinance shall be introduced in the form and manner prescribed for ordinances generally, except that it may be introduced on one-hour public notice, and shall contain, after the enacting clause, a declaration stating that an emergency exists and describing the emergency in clear and specific terms. An emergency ordinance may be adopted with or without amendment or rejected at the meeting at which it is introduced, but the unanimous vote of the Council members present shall be required for adoption.

C. Adoption, Re-enactment, Repeal. After its adoption the ordinance shall be published and printed as prescribed for other adopted ordinances. It shall become effective upon adoption or at such later time as the ordinance may specify. Every emergency ordinance shall stand repealed automatically as of the 31st day following the date on which it was adopted, but this shall not prevent the re-enactment of the ordinance, in the manner specified in this section, if the emergency still exists. An emergency ordinance may also be repealed by adoption of a repealing ordinance, in the same manner specified in this section for adoption of emergency ordinances.

(Res. of 05-23-2023(1), Amd. E, Election of 5-6-2023)

Section 3.11 INITIATIVE.

Whenever a number of registered voters equal to at least five percent of the voters who voted in the last general City election sign a petition setting forth the precise content of an ordinance desired by the signers, the Council must place that ordinance on the agenda of a Council meeting to be held within thirty working days of the receipt, by the City Clerk, of the petition bearing the authenticated names and addresses of the petitioners. Such an item shall be treated by the Council exactly as any other proposed ordinance.

Should an ordinance proposed by such petition not be enacted by the Council, or should it be enacted in an amended form, a second petition, signed by a number of registered voters equal to at least five percent of the voters who voted in the last general City election, may be submitted to the City Clerk and that official shall have twenty working days in which to authenticate the signatures and thereafter must place the reproposed ordinance on the ballot at the next general election specified in State law, if the proposal received the favorable vote of a majority of those voting in that election it shall thereupon become a City ordinance.

The Council is not obliged to consider the same ordinance initiated by petition, or one that is substantially the same, more often than once in: two years.

Section 3.11A REFERENDUM.

A referendum election may be called by the City Council when a collective bargaining agreement between the City and an employee organization so provides.

Section 3.12 RESOLUTIONS.

The Council may act by resolution in all cases unless an ordinance is required by this Charter.

Section 3.13 CODES OF TECHNICAL REGULATIONS.

A. The Council may adopt any standard code of technical regulations by referring to that code in an adopting ordinance.

B. The procedure and requirements governing such an adopting ordinance shall be as prescribed for ordinances generally except that:

1. The requirements of Section 3.9A and B of this Charter, for distribution and filing of copies of the ordinance, shall be construed to include copies of the code of technical regulations as well as of the adopting ordinance;

2. A copy of each adopting code of technical regulations as well as of the adopting ordinance shall be authenticated and recorded by the City Clerk pursuant to Section 3.14A of this Charter; and

3. Copies of any adopted code of technical regulations shall be made available in the office of the City Clerk for examination by interested persons.

Section 3.14 AUTHENTICATION AND RECORDING; CODIFICATION; PRINTING.

A. All ordinances and resolutions of the Council shall be authenticated by the City Clerk and recorded in an indexed public record.

B. The Council shall provide for the preparation of a general codification of this Charter and its amendments, and of those ordinances selected by the Council. This codification shall be known and officially cited as the El Paso City Code. Copies of the Code shall be furnished to City officers and placed in libraries and public offices within the El Paso City limits, for free public reference.

Section 3.15 CONSERVATION.

The Council must, in consultation with the Public Service Board, and within two years following the adoption of this Charter, enact and maintain a comprehensive plan for the conservation of water and other natural resources. The plan shall take into consideration the impact on natural resources resulting from any governmental action, including, but not limited to, land use, zoning regulations, building code requirements, and development and operation of public facilities. The City shall continue to implement the plan by using such means as the Council makes available to acquire, conserve and preserve natural resources for future generations.

Section 3.16 BORDER RELATIONS.

The Council must, within one year following the adoption of this Charter, provide for the duties, appointment, structure, terms of office and filling of vacancies on a standing Committee on Border Relations, comprised of El Paso citizens.

The Committee on Border Relations shall propose, promote and, from time to time, revise a program to enhance relations with Ciudad Juarez and with the border area in proximity to El Paso.

Section 3.17 ANNEXATION OF TERRITORY.

The Council may, by ordinance, fix or extend the boundaries of the City and may also, by ordinance, annex or exchange territory adjoining or abutting upon the territory of the City. The territory so annexed shall, in all respects and for all purposes, be part of the City. In no event shall an annexation ordinance be passed without notice, published in accordance with state law, to the residents of the City and of the territory to be annexed, nor without a meeting of the Council at which proponents and opponents of the annexations must be given ample opportunity to express their views.

Section 3.18 LEASE; FRANCHISE; AND CONVEYANCE.

The right of control, ownership and use of streets, alleys, parks and public places of the City is declared to be inalienable except as provided by ordinance passed by the Council and except for uses of less than thirty days which may have a separate approval process as established by ordinance.

Any ordinance providing for the conveyance, lease, or grant of a franchise regarding the property of the City shall provide for payment to the City of a reasonable fee as consideration for that conveyance, lease, or franchise. In addition, any ordinance providing for the lease or franchise shall provide that:

1. At the termination of the lease or franchise, the property involved, together with any improvements thereto, made or erected during the term of the lease or franchise, shall (either without further compensation or upon payment of a fair valuation therefore as determined by the terms of the ordinance), become the property of the City; and

2. Every lease or franchise may be revoked by the City if necessary to secure efficiency of public service at a reasonable rate, or to assure that the property is maintained in good order throughout the life of the grant.

Section 3.19 PROHIBITING THE SALE OF ALCOHOLIC BEVERAGES IN RESIDENTIAL SECTIONS OF THE CITY.

The sale of beer and liquor is hereby prohibited in residential areas of the City.

Section 3.20 ETHICS AND ACCOUNTABILITY.

A. Ethics Review Commission. The Council shall, by ordinance, establish an independent ethics review commission to administer and enforce the ethics section of the City Code. To the extent permitted by Texas law, the Council shall authorize the commission to issue advisory opinions, conduct investigations, request witness testimony and production of evidence, and make determinations on whether a violation has occurred, and issue decisions and appropriate sanctions. The commission shall have the power to enforce its decisions by assessing civil fines and other sanctions as authorized by ordinance. The Council shall provide sufficient resources to the commission to enable it to perform the duties assigned to it under the Charter and City Code.

B. Internal Audit Function.

1. The Council shall establish and create an internal audit function to ensure that appropriate internal audits will be performed in accordance with professionally recognized auditing standards of the operations of all City departments, offices, agencies and programs.

2. The function shall be staffed by a Chief Internal Auditor and such other appropriate positions as are authorized by the Council who shall report to the Chief Internal Auditor.

3. Consistent with the provisions of this Charter, the Council shall by ordinance or resolution provide for the powers and duties of the Chief Internal Auditor as needed for the performance of the function.

4. The Financial Oversight and Audit Committee shall maintain legislative oversight over the internal audit function as provided in Section 3.6 B.

5. On and after the effective date of this amendment, the Chief Internal Auditor shall be appointed and removed by, and report to the Council. The Chairman of the Financial Oversight and Audit Committee shall maintain operational oversight over the internal audit function. The City Manager shall be responsible for the implementation of any audit recommendations for changes to City administrative procedures and operations as requested by the Council.

(Res. of 05-23-2023(1), Amd. J, Election of 5-6-2023)

Article IV THE MAYOR

Section 4.1 POWERS OF THE MAYOR.

A. The Mayor shall be recognized as head of the City government for all ceremonial purposes and by the governor for purposes of military law but shall have no administrative duties except as may be specifically provided in this Charter.

B. The Mayor shall be a member of and preside over the City Council, having the power to propose legislation; represent the City in intragovernmental and intergovernmental relationships; appoint with the consent of the Council the members of citizen advisory boards and commissions; make appointments and perform duties pursuant to federal and state law; present an annual state of the City message, break tie votes, veto legislation except for any City Council action which removes the City Manager or the City Attorney, convene the Council in special session and perform other duties specified by the Council.
(Ord. No. 18401, Amd. No. 5, 8-11-2015, Election of 11-3-2015)

Section 4.2 DUTIES OF THE MAYOR.

A. Under the authority of the Council, the Mayor shall sign all lawful acts of the Council, such as ordinances, resolutions, conveyances, grant agreements, plats, contracts and bonds. The Council may by ordinance provide that additional designated officials may sign such acts of Council on behalf of the Mayor, as provided by law.

B. The Mayor shall have the sole authority to appoint and remove the Mayor's Executive Secretary and Executive Assistant(s).

Section 4.3 MAYOR PRO TEMPORE.

A. At the first meeting upon the start of new terms of office following each general election, the Council shall elect from among the Representatives a Mayor Pro Tempore, who shall hold that office for a two year term. Should the office of Mayor Pro Tempore become vacant, the Council shall elect a new Mayor Pro Tempore.

B. During the absence or disability of the Mayor, the Mayor Pro Tempore shall act as Mayor, but shall vote as a Representative, and shall have no veto power.

C. In the event of the absence of both the Mayor and Mayor Pro Tempore, the Council shall elect an alternate Mayor Pro Tempore to serve until the return of the Mayor or Mayor Pro Tempore.

Article V CITY MANAGER

Section 5.1 APPOINTMENT; QUALIFICATIONS; COMPENSATION.

The City Council by a majority vote of its total membership shall appoint a City Manager and fix the Manager's compensation. The City Manager shall be appointed solely on the basis of executive and administrative qualifications. The Manager need not be a resident of the City at the time of appointment but shall establish residence in the City within sixty days after the date of appointment.

Section 5.2 POWERS AND DUTIES.

The City Manager shall be the chief administrative officer of the City, responsible to the Council for the administration of all City affairs placed in the Manager's charge by or under this Charter. The City Manager shall:

1. Take all personnel actions regarding employees except as provided by law or in this Charter. The City Manager may authorize the Deputy City Managers and department directors to exercise these powers with respect to their subordinates;

2. Direct and supervise the administration of all departments, offices and agencies of the City, except as otherwise provided by this Charter or by law;

3. Attend all City Council meetings. The City Manager shall have the right to take part in discussion but shall not vote;

4. See that all laws, provisions of this Charter and acts of the City Council, subject to enforcement by the City Manager or by employees subject to the Manager's direction and supervision, are faithfully executed;

5. Prepare and submit the annual budget and capital program to the City Council;

6. Submit to the City Council and make available to the public a complete report on the finances and administrative activities of the City as of the end of each fiscal year;

7. Make such other reports as the City Council may require concerning the operations of City departments, offices and agencies subject to the City Manager's direction and supervision;

8. Keep the City Council fully advised as to the financial condition and future needs of the City;

9. Make recommendations to the City Council concerning the affairs of the City;

10. Provide support to the offices of the Mayor and the Representatives; and

11. Perform such other duties as are specified in this Charter or may be required by the City Council.

Section 5.3 REMOVAL.

The City Manager may be removed by a resolution approved by the majority of the total membership of the City Council, with or without cause.

Section 5.4 ACTING CITY MANAGER.

By letter filed with the City Clerk, the City Manager shall designate a City employee to exercise the powers and perform the duties of City Manager during the Manager's temporary absence or disability. The City Council may revoke such designation at any time and appoint another employee of the City to serve until the City Manager returns.

Section 5.5 INTERFERENCE WITH PERSONNEL OR ADMINISTRATION.

Except for the purposes of investigations under Section 3.8 and inquiries, the members of the Council shall deal with City employees who are subject to the direction and supervision of the City Manager solely through the City Manager, and neither the Council nor any of its members shall give orders to any such employee, either publicly or privately. Neither the Council nor any of its members shall in any manner control or demand the appointment or removal of any City employee whom the City Manager is empowered to appoint, but the Council may express its views and fully and freely discuss with the City Manager anything pertaining to appointment and removal of such employees.

Article VI CIVIL SERVICE

Section 6.1 CIVIL SERVICE COMMISSION.

Section 6.1-1 GENERAL.

The Civil Service system exists to ensure a personnel system that is based solely on merit. The Civil Service Commission of El Paso exists for the purposes of overseeing the City's Civil Service system, the purpose of which is to ensure fairness, economy and efficiency in the selection process and personnel system created for the classified employees, and performing the duty of hearing grievances by or against classified employees. The Commission shall establish its own procedures within the framework of this Charter to carry out these functions.

Section 6.1-2 FUNCTIONS AND DUTIES OF THE CIVIL SERVICE COMMISSION.

Special meetings shall be held as required for the proper discharge of the duties of the Commission, due notice having been given. Five members of the Commission will constitute a quorum. It shall be the duty of the Commission to:

A. Recommend to the Council:

1. Adoption of Rules for the administration of the Civil Service provisions of this Charter, and

2. Thereafter, appropriate amendments.

B. Investigate matters concerning the enforcement and effect of the Civil Service provisions of this Charter in the manner prescribed by the Rules or by established Commission procedure.

C. Hear and determine appeals or complaints as may be further prescribed in the Rules.

D. Oversee the Civil Service provisions of this Charter ensuring fair and equitable treatment of all persons coming before the Commission.

E. Appoint hearing officers.

Section 6.1-3 APPOINTMENT.

The Commission shall consist of nine persons appointed by the Council. All members serving on the Commission when this amendment takes effect will continue to serve until their terms of office expire. Appointments shall be for three-year terms, provided however, the terms of all members as established on the effective date of this amendment shall be extended such that all terms shall end on January 31st of the next-following year, as applicable. All terms thereafter shall commence on February 1st. Commissioners serving consecutive terms shall be limited to two full successive three-year terms, regardless of the date of their original appointments. No person may serve as a member on the Commission for more than a total of ten years throughout their lifetime and no person may be appointed as a member on the Commission if, serving out the full length of the term to which they would be appointed would result in the person having more than a total of ten years of lifetime service. The one-time extension of a term under this section to provide for the uniform termination and commencement dates of the terms shall not be included in the calculation of the lifetime service of a member of the Commission.

Section 6.1-4 QUALIFICATIONS.

Members of the Commission must be residents of the City at the time of their appointment and remain a resident of the City throughout their term of office. No Commissioner shall be related in any manner described in Article III, Section 3.3 B to any employee of the City, the Public Service Board, or any entity that has a contract with the City to operate or manage any City facility or department, nor hold any salaried public office or other employment compensated by the City, and any violation of this provision shall be deemed malfeasance in office and cause for removal therefrom. At least two Commissioners must hold or have retired from positions other than managerial or professional. No more than three Commissioners may be former city employees, and any such Commissioners are not eligible for appointment until two years following separation from the City. Any Commissioner may be either actively employed or retired.

Section 6.1-5 COMPENSATION.

Members of the Commission shall serve without salary.

Section 6.1-6 RULES.

A. Rules. The Rules shall be consistent with the principles and practices of the civil service system incorporated in this Article. They shall be adopted by the Council by ordinance, after considering recommendations of the Commission.

B. Procedures for Adoption. The Human Resources Director shall submit to the Commission proposed Rules for its review and recommendation to the Council. Failure by the Commission to recommend approval, modification or disapproval of proposed Rules within sixty days after receipt shall constitute authority for the Council to proceed without a recommendation from the Commission.

C. Changes, Additions or Deletions. Proposed changes, additions or deletions to the Rules shall be processed through the Commission to the Council in the same manner and subject to the same standards as for the basic Rules as set forth in A and B above.

D. Council Action. The Human Resources Director shall submit the Commission's recommendations regarding proposed Rules to the Council without delay. Failure by Council to approve, amend and approve, or deny the Commission's changes within sixty days after the Commission's action shall result in their automatic adoption. In the event of disagreement, the Council may deny or amend the Commission's changes, additions or deletions only by a two-thirds majority vote of the Council.

Section 6.1-7 POWER TO SUBPOENA WITNESSES.

The Commission shall have the power to subpoena witnesses, require the production of evi-

dence and administer oaths. The Council shall provide, by ordinance, penalties for contempt for failing or refusing to obey a subpoena or to produce evidence, and shall have the power to punish any of these acts of contempt in the manner provided in the ordinance. Costs incident to actions under this section shall be borne by the party requesting the subpoena.

Section 6.1-8 JURISDICTION.

The Commission will have jurisdiction over all employees in the classified service.

Section 6.1-9 ORGANIZATION.

The Commission shall elect from its members a Chairman and a Vice-Chairman, each for a term of one year. The Chairman may not be re-elected for successive terms.

Section 6.1-10 REMOVAL.

Members of the Commission will not be removed from office except for incompetence or nonfeasance, misfeasance or malfeasance in office, such as neglect of duty or refusal to perform the duties imposed by this Charter. Action may be initiated in writing by any member of the Council or Commission. Any removal will require an affirmative vote of two-thirds of the Council.

Section 6.1-11 NON-DISCRIMINATION.

The City shall afford equal employment and benefit opportunities to all qualified individuals in compliance with all applicable laws, without regard to their race, gender, gender identity, sexual orientation, marital status, color, religion, ethnic background or national origin, age, disability, or any other characteristic or status that is protected by federal, state, or local law.

Section 6.1-12 HEARING OFFICERS.

The Commission will appoint one or more compensated hearing officers to hear appeals made under Section 6.13-4. The need for hearing officers in excess of one shall be determined jointly by the Commission and the City Manager. Hearing officers will perform those duties and functions necessary to render a recommendation to the Commission on the matter in dispute.

The hearing officers will serve at the Commission's pleasure, and will be procured through the City's procurement process.

(Res. of 05-23-2023(1), Amd. E, Election of 5-6-2023)

Section 6.2 DIVISION OF THE CITY SERVICE.

Section 6.2-1 DIVISION.

All offices and positions of trust or employment in the service of the City are hereby divided into the unclassified and classified services.

Section 6.2-2 UNCLASSIFIED SERVICES.

The unclassified services shall include only the following positions:

A. The City Attorney, Assistant City Attorneys, law clerks and paralegal personnel;

B. The Mayor's executive secretary(s) and Executive Assistant(s);

C. Hearing officer(s) and the Commission Recorder;

D. All elected officials;

E. Members of all City boards, commissions, and committees who serve without compensation;

F. Employees hired by contract, and short-term or limited-funding grant-funded employees as designated by the City Manager and hired on or after the effective date of this amendment;

G. The City Manager;

H. All executive level employees, and executive staff or salaried professional employees reporting directly to the City Manager;

I. Employees hired on or after May 18, 2007 who work at the Metropolitan Planning Organization; and

J. Persons given provisional and temporary appointments who are not classified employees at the time of such appointment.

K. A person hired solely as a District Representative's legislative aide for the limited period of the term of office for that District Representative.

Section 6.2-3 APPOINTMENT AND REMOVAL OF UNCLASSIFIED PERSONNEL.

A. Except as otherwise provided in this Charter, appointments to the unclassified services shall

be made by the City Manager solely on the basis of education and experience in the accepted competencies and practices of their field.

B. Except as otherwise provided by law or in this Charter, unclassified personnel may be removed by the City Manager or designee, who may establish written procedures for removal, except for hearing officers and the Commission Recorder, who may be removed only by a majority vote of the commissioners.

Section 6.2-4 CLASSIFIED SERVICES.

The classified services include all positions not listed in Section 6.2-2 of this Article.

Section 6.3 RESERVED.

Section 6.4 CLASSIFICATION AND COMPENSATION.

Section 6.4-1 CLASSIFICATION PLANS.

The Human Resources Director shall update as necessary the classification and compensation plans of the City for the classified services and present such plans to the City Council as part of the annual budget. Such plans shall include the annual sick leave and vacation benefits to be provided, establish the factors that are authorized for use in the payment of different rates within the grades or calculating total compensation, and shall also include and address as necessary any reduction in compensation that is anticipated to occur during the next budget year. The classification and compensation plans may be adopted as part of the budget or by separate resolution or ordinance in conjunction with the adoption of the budget.

Section 6.4-2 APPOINTMENT OF CITY EMPLOYEES.

Appointment of City employees to classified positions shall be made at pay rates within the appropriate grade and in accordance with the Rules or administrative policies or procedures.

Section 6.5 CERTIFICATION AND SELECTION OF CANDIDATES

Section 6.5-1 CERTIFICATION PROCESS.

A. The Human Resources Director shall certify candidates eligible for hire or promotion based solely on their qualifications in accordance with established administrative policies and procedures or by Rule, which may allow a preference for the hiring and promotion of former employees separated without fault or delinquency, or for other just and reasonable cause in conformity with the Charter and consistent with the principles of the civil service system and established policies.

B. When appropriate, the Human Resources Director will establish administrative procedures as necessary for the certification and selection process, including procedures to allow for a fair and competitive selection process designed to meet the needs of the departments while ensuring that the most qualified candidates are certified for selection.

Section 6.5-2 RULE OF FIVE.

As necessary for the promotion process, the Human Resources Director shall certify the five highest names on a promotion-only eligible list for a vacancy, and additional names in situations where eligible persons are serving in the department in which the vacancy exists and as authorized by Rule.

Section 6.6 APPOINTMENTS

Section 6.6-1 APPOINTMENTS.

Employees may be appointed as regular full or part-time employees, provisional or temporary employees, or as contract appointments. The City Manager shall establish administrative policies and procedures for each category of appointment consistent with the provisions of this Article and all applicable federal and state employment laws. The Human Resources Director shall establish administrative policies and procedures for the entrance process consistent with the provisions of this Ar-

ticle and all applicable federal and state employment laws. Contracts for personal or professional services shall also be subject to any limitations and requirements for Council approval as set forth by ordinance or resolution.

Section 6.7 EXAMINATIONS.

Section 6.7-1 PENALTY FOR DECEIT IN EXAMINATION.

An applicant in any examination who uses or attempts to use any unfair or deceitful means to pass the examination shall be excluded from further participation in the examination and the papers not rated, except as may be provided in the applicable Rules or policies and procedures.

Section 6.8 PROMOTION.

Section 6.8-1 EXAMINATION AND ELIGIBILITY.

The Human Resources Director shall establish administrative policies and procedures for the promotion process, including examination and eligibility, consistent with the provisions of this Article and all applicable federal and state employment laws. Promotion to any position in the Civil Service shall be by examination weighed by seniority and performance record, except as otherwise provided in the Charter or Rules. Eligibility criteria and rating factors for promotions shall be established by Rule and shall include a credit for seniority.

Section 6.9 SPECIAL PROVISIONS.

Section 6.9-1 PROBATION PERIOD.

Probationary periods shall be established by Rule. Such Rule shall prescribe the procedures and consequences applicable to employees who fail to successfully complete probationary periods, and provide criteria for the extension of probationary periods.

Section 6.9-2 IMPACT OF STAFF REDUCTIONS.

The Human Resources Director is authorized and directed, subject to approval by the Council, to establish systems for reducing the impact on the Civil Service of staff reductions and layoffs caused by operating economies.

Section 6.9-3 NEPOTISM PROHIBITED.

Except in the case in which the City Manager or other person making the appointment appoints the highest scoring individual certified from a proper eligible list, or from a reinstatement list involving the appointment of a former incumbent, no person may be appointed to or reinstated in any classified position or appointed to any unclassified position who, at the time of appointment or reinstatement, is related in the manner described in Article III, Section 3.3B, to any member of the Council, the City Manager or other person making the appointment, the Human Resources Director, or the direct superior of the position being considered.

Section 6.9-4 SPECIAL CREDIT FOR WAR VETERANS.

Veterans of any of the wars or other armed conflicts of the United States who are otherwise qualified, who have obtained a passing score on an original entrance examination, and who present an honorable discharge from military service, will have their ratings in the examination advanced five points.

Veterans who are suffering from disability traceable directly or indirectly to war service will have their original entrance examination rating advanced another five points.

Section 6.9-5 ADMINISTRATIVE ACTION.

A. Policies and procedures utilized by the Human Resources Department shall be established administratively by the City Manager or the Human Resources Director as required or authorized by this Article or as necessary for the proper management and operation of the system. All admin-

istrative policies and procedures adopted by the City Manager or the Human Resources Director must be consistent with the provisions of this Article, the Civil Service Rules, and applicable state and federal laws.

B. The City Manager may delegate to appropriate individuals the execution of the functions, duties and responsibilities set forth in this Article. Appropriate designees may include department directors and other persons able and assigned to execute the specific functions, duties or responsibilities.

Section 6.10 LAY-OFF; LEAVE OF ABSENCE; AND REINSTATEMENT.

Section 6.10-1 CONDITIONS FOR LAYOFF.

Whenever it becomes necessary through lack of work or funds, or through the abolishment of a position or class, or for any other reason not involving delinquency on the part of the employee, to reduce the number of employees in any class, the City Manager may order a layoff. The reduction will be made in accordance with the principles established in the Rules and the administrative procedures established by the Human Resources Director, consistent with the provisions of this Article and all applicable federal and state employment laws.

Section 6.10-2 JOB RIGHTS.

Employees who are removed from their positions as the result of abolishment or a layoff (to include subsequent displacement action) will have the right to be appointed to any vacant position for which qualified, in accordance with the procedures established in the Rules.

Section 6.10-3 LEAVE OF ABSENCE; REINSTATEMENT.

The City Manager shall establish administrative policies and procedures regarding the eligibility of employees to take a leave of absence and to be reinstated, consistent with the provisions of this Article and all applicable federal and state employment laws.

Section 6.11 TRANSFER AND REDUCTION.

Section 6.11-1 TRANSFER AND REDUCTION.

The Human Resources Director shall establish administrative policies and procedures for the transfer and reduction process, including transfer and reduction for physical incapacity, consistent with the provisions of this Article and all applicable federal and state employment laws.

Section 6.12 STANDARDS OF EFFICIENCY.

The City Manager shall establish by written policy appropriate standards of efficiency for all positions in each class and grade in the classified positions.

Section 6.13 DISCHARGE, APPEAL, HEARING.

Section 6.13-1 DISCHARGE DURING PROBATION.

A new employee may be discharged at any time during the probation period for any reasons but, for the record, a full statement of those reasons must be filed with the Human Resources Director within three days of the discharge.

Section 6.13-2 DISCIPLINARY ACTION; REDUCTION.

A regular employee may be discharged, suspended or reduced in rank or position as provided in this Charter or further defined in the Rules.

Section 6.13-3 CAUSES OF SUSPENSION, REDUCTION OR DISCHARGE.

The following, which may be further defined in the Rules, may constitute causes for discharge, suspension or reduction in grade of regular employees:

A. Conviction of, or deferred adjudication community supervision for, a felony or of a Class A or B misdemeanor;

B. Abusive, threatening, or coercive treatment of another employee or a member of the public, the provocation or instigation of violence, brutality to a City prisoner, or abusive treatment to an animal in the care or control of the employee;

C. Being under the influence of intoxicants or drugs or the use thereof while on duty;

D. Being physically or mentally unfit for City service to the extent permissible under federal and state laws;

E. Being wantonly offensive in conduct or language;

F. Incompetency or negligence in the performance of duties, including but not limited to, failure to perform assigned tasks, or failure to discharge duties in an accurate, prompt, competent, or responsible manner;

G. Dishonesty, theft, violation of a law, or violation of policies relating to the handling or procurement of property, or negligence in care or misuse of City property;

H. Abandonment of position, repeated unexcused absence or tardiness, abuse of leave privileges, or absence without notification or the provision of a valid or acceptable reason for absence;

I. Failure to meet or maintain qualifications, including but not limited to, failing to obtain or maintain required certificates, licenses or other credentials established for the employee's position or classification;

J. Inducing or assisting another to commit an unlawful act;

K. Deliberate or careless conduct endangering the safety of self or others;

L. Engaging in improper political activity;

M. Violates the City's Ethics Ordinance;

N. Refusal to follow the lawful order of a superior or supervisor;

O. Subjecting a fellow employee or subordinate to unlawful intimidation, harassment or retaliation; and

P. For just cause.

Section 6.13-4 APPEALS.

Any regular classified employee may appeal to the Commission any order which is believed to violate the rights granted employees by this Charter. This appeal must be filed with the Commission within thirty days from the date of the alleged violation and may be in any form clearly directing the attention of the Commission to the order complained of and the rights or provisions violated.

Section 6.13-5 HEARING OPTIONS.

Upon receiving notice of appeal, the Commission may in its discretion hear the appeal directly or refer it to a Hearing Officer.

Section 6.13-6 ACTION BY COMMISSION.

A. If the Commission hears the appeal in a disciplinary case it will, by majority vote of its members present and voting, determine whether the evidence sustains the charges. If the Commission determines that the charges are sustained, in whole or in part, it will at once determine whether the good of the service requires that the appealed action be upheld or reduced. If the Commission determines that the charges are not sustained, the accused will be reinstated immediately and without prejudice, and will not be deprived of any salary for any period of suspension preceding the hearing.

B. In cases involving matters such as denial of promotion, the Commission shall review all facts in the cases and direct appropriate corrective steps, if necessary.

C. In conducting any hearing, the Commission must in all cases, afford full and free opportunity to all parties to present evidence relevant to the issue or issues involved. The burden of proving an alleged offense and of establishing just ground of discharge, suspension or reduction rests upon the City Manager or designee by whom the action was taken. A preponderance of the evidence is required to substantiate any charge.

D. Decisions of the Commission shall be final.

Section 6.13-7 HEARING OFFICER.

A. The Hearing Officer shall have the power to establish appropriate procedures for the conduct of the hearing, issue subpoenas to compel the attendance of witnesses, make appropriate findings during the course of a hearing, prepare written recommendations to the Commission, and such other powers and duties as set forth in the Rules.

B. The principles established in Section 6.13-6, will apply equally to hearing officers.

Section 6.13-8 SUBSEQUENT ACTION.

Upon receipt of the Hearing Officer's opinion and recommendations where applicable, the Commission will review the written record of the hearing, review any written briefs or oral arguments which the parties are permitted by the Commission to submit in accordance with the Rules, and take one of the following actions:

A. Accept or reduce the Hearing Officer's recommendations;

B. Remand the matter to the Hearing Officer for development of such additional facts and findings as the Commission deems necessary. Consistent with the remand, the Hearing Officer must conduct an additional hearing and render a further opinion or recommendations for its further action pursuant to this provision; or

C. Reject the Hearing Officer's recommendations and refer the matter to the Civil Service Commission for a de novo hearing.

Section 6.13-9 RESERVED.

Section 6.13-10 CONSTITUTIONAL RIGHTS.

Nothing in this Charter shall be construed as denying or abridging any constitutional right of appeal.

Section 6.13-11 PENSION PLANS.

A. The Council shall continue a pension plan for all regular full time employees. Regular part-time and eligible contract employees may elect not to participate in the plan. Other employees of the City and employees of governmental agencies of the City, except policemen, firemen, and elected officials of the City, shall have the option of participating in the plan. Eligible employees of an adopting employer of the plan shall be participants of the plan.

B. Funding and Liability. The funds for the plan shall be provided in part by the City and in part by deductions from the salaries of employees; provided, that the amount paid into the fund by the City shall not exceed double the amount paid into the fund by the salary deductions; and provided further that the City shall not be liable to any beneficiaries of the fund except to the extent of its appropriations for the fund. The claims of all beneficiaries shall be limited to the available monies or securities in the pension fund.

C. Pension Benefits. The Council may provide by ordinance for the retirement, disability or death benefits to be paid and persons to be entitled thereto, and the conditions under which payments of benefits or repayment of contributions may be made. The Council may make such changes and amendments as, in its judgment and discretion, conditions may require.

D. Firemen and Policemen Pension Fund of El Paso. The City shall continue to augment the Firemen and Policemen Pension Fund of El Paso in a manner consistent with the laws of Texas. To augment the Firemen and Policemen Pension Fund, the Council shall in each fiscal year beginning after May 2023, appropriate no less than eighteen percent of the total amount expended for wages of the participants, and may increase this contribution rate as allowed by the relevant state law requirements based on a qualified actuary's report; provided, however, that in the event age limits for participation in the pension fund, or any division of the fund, are increased as permitted by law and the raising of the age limits causes an increase in funding costs as determined by an actuary, the City shall appropriate an amount equal to such cost increase notwithstanding that such increased appropriation may exceed the otherwise determined percent of the total amount expended for

wages of the participants. Notwithstanding the foregoing, if the City elects to pick up participant contributions to the Firemen and Policemen Pension Fund of El Paso under Section 414(h) of the Internal Revenue Code of 1986, as amended (the "Code"), then the participant contributions picked up by the City shall be derived from a corresponding reduction in participant cash salaries and treated as a contribution by the City solely for determining tax treatment of such contributions under the Code. The picked up contributions by the City shall not be considered a contribution or required contribution by the City for any other purpose, including the limitations for the total amount expended for salaries of the participants designated in this Section 6.13-1l.D. Notwithstanding the foregoing, the City shall have the authority to contract with the Firemen and Policemen Pension Fund to make a one time contribution (either in lump sum or installments) to the Firemen and Policemen Pension Fund solely for an underfunded liability as of December 31, 2003 or the date of contribution, under such conditions as the City in its sole discretion may require and provided that (a) such authority, action and/or contribution complies with the Firemen and Policemen Pension Fund plan documents and all applicable statutes, laws, rules and regulations, and (b) a binding written agreement between the City and the Firemen and Policemen Pension Fund has been reached regarding (i) the amount of such under-funded liability, if any, (ii) the amount to be contributed by the City for such under-funded liability, and (iii) procedures (including, if necessary, amendments to the Firemen and Policemen Pension Fund plan documents) for managing the Firemen and Policemen Pension Fund on a going forward basis.
(Res. of 05-23-2023(1), Amd. I, Election of 5-6-2023)

Section 6.13E CONSOLIDATION OF FUNCTIONS WITH OTHER POLITICAL SUBDIVISIONS.

If the City and any other political subdivision agree that the City will thereafter assume the responsibility for performing a governmental function which is at the time of the agreement being performed by employees of the other political subdivision, the employees of the other political subdivision who have been performing the function may be admitted into classified positions in the Civil Service without examinations, probationary periods, or loss of accrued leave. The seniority date for all such employees for purposes of layoff shall be the date of admission into the classified service. Any such employees going into lower compensated positions shall be protected from any loss of pay in accordance with the Civil Service Commission Rules as to Reclassification to Lower Grades. Any such consolidation of functions must be approved by City Council. Any question regarding the eligibility of any employee to be included in the consolidation is to be decided by the Civil Service Commission, whose decision shall be final.

Section 6.14 DEFINITIONS OF TERMS.

The following definitions apply to this article:

Abolishment: Either temporary or permanent discontinuance of a given office, service, or position, by reason whereof the functions and duties of the office, service or employment cease; generally evidenced by the deletion of a position from a departmental manning table.

Certification: The process by which the names and addresses of persons on a proper eligible list are placed in the correct order in which vacancies are to be filled and thereby become entitled to be considered to fill a vacancy.

Class: A group of positions within the same title, so arranged because of similarity in duties and responsibilities and for which the same basic examination, compensation, and minimum qualifications apply.

Commission (when used by itself): The Civil Service Commission.

Dismissed, Discharged, and Removed: Actions under which employees are separated from their respective positions for cause.

Executive Level Employees: Those employees designated as executive level employees in their job descriptions and/or scope of duties based on the high level of management responsibilities and duties performed as determined by the Human Resources Director.

Grade: Term representing a specific range of compensation.

Human Resources Director: The director of the Human Resources Department or designee.

Promotion: A change from a position in a lower class to a position in a higher class. It involves a change of duties or responsibilities as well as an upward change in compensation.

Regular Employee: Any classified employee who has been regularly appointed service.

Rules: When used by itself, the Rules of the Commission.

Suspension: Action under which an employee is for cause temporarily separated without pay for a definite or indefinite period.

Section 6.15 EXISTING LAWS AND CONSTITUTIONALITY.

All Civil Service Charter Amendments, including those of 1917, 1935, 1943, 1968, 1977, and 1981, respectively, and all existing Charter provisions pertaining to Civil Service are hereby repealed, and all ordinances, or parts thereof, in anywise conflicting or inconsistent with this Charter or any of the provisions hereof are hereby expressly repealed. However, the adoption of this Charter will in no way affect the rights of persons whose appeals are pending before the Commission or in the courts at the time of its adoption. Such appeals and other pending matters may be decided by the Commission or other appropriate tribunal in the light of the provisions of the previous Civil Service amendment or amendments.

Article VII PUBLIC FINANCE.

Section 7.1 FISCAL YEAR.

The fiscal year and the budget year of the City shall begin on September 1st and end on the succeeding August 31st.

A. Change in Fiscal Year. The Council, by ordinance, is authorized to provide for a change in the City's fiscal and budget year from the present period to the period October 1 through September 30, in one or more stages, and to provide for necessary and appropriate changes to be made in the dates for preparation and adoption of the budget and other related matters. In order to provide any necessary financing during the transition or changeover period, the Council may, by ordinance, authorize the borrowing of money by the issuance of general obligation bonds or promissory notes and the levying of a sufficient tax to pay the interest thereon and to provide the required sinking fund to pay the principal thereof, and/or may authorize the payment of all or any part of said interest and principal from any other anticipated tax receipts or other available funds.
(Ord. No. 18401, Amd. No. 7, 8-11-2015, Election of 11-3-2015)

Section 7.2 BUDGET.

The budget must present a complete financial plan for the fiscal year, and must contain all elements required under State law.
(Ord. No. 18401, Amd. No. 8, 8-11-2015, Election of 11-3-2015)

Section 7.3 BUDGET PROCEDURES.

The procedures here stated shall govern adoption of the annual budget and the appropriations of monies pursuant thereto.

A. Department Estimates. Annually, but not later than three months before the first day of the City's fiscal and budget year, administrative units of the City shall transmit estimates of their budgetary requirements and descriptions of their work programs to the Office of Management and Budget and to the City Manager. The work programs

shall include all requested appropriations for the departments' operation and maintenance, including capital equipment, construction, and acquisition.

B. Public Hearing. After its presentation to the Council, at least one public hearing on the budget shall be held prior to its adoption; and notice of that public hearing shall be published in accordance with state law. The proposed budget shall be made available for examination at the office of the City Clerk, in accordance with State law.

C. Changes. After the required public hearing, the governing body may make any changes to the budget in accordance with and/or permitted by State law.

D. Adoption. The budget shall be adopted by resolution, subject to the Mayor's veto, not later than the day before the first day of the City's fiscal and budget year; but, in the event the budget is not adopted, the appropriation for personnel and essential operating supplies made in the previous year shall be extended until the new budget is adopted.

E. Filing. A copy of the budget, as finally approved, shall be filed with the El Paso City and County Clerks' offices.

F. Tax Levy. As soon as possible after the completion of the tax roll, the Council shall pass the tax levy ordinance in accordance with the laws of Texas.

G. Balanced Budget. If at any time during the fiscal year, the City Manager ascertains that available income for the year, including fund balances, will be less than total appropriations, the Council shall reduce those appropriations so that expenditures will not exceed income. Expenditures in excess of gross revenues during the fiscal year are prohibited.

H. Availability. The final budget shall be available for use by City departments and for examination in the City Clerk's office by any interested persons.

(Ord. No. 18401, Amd. No. 8, 8-11-2015, Election of 11-3-2015)

Section 7.4 CASH RESERVE FUND.

A cash reserve fund in the general operating fund of the City shall be maintained in an amount no less than five percent (5%) of the prior year's adopted general fund operating expenditure budget. The cash reserve fund shall be maintained and reported as restricted under applicable Governmental Accounting Standards Board rules and must be invested in accordance with the laws of Texas. Short term borrowing from the cash reserve fund shall be for a period of no more than one calendar year and must be approved by the Council. Annual income from the cash reserve fund may be used only for capital improvements. "Capital improvements" shall be construed to include acquisition, construction, reconstruction, or improvement of facilities, equipment, or land for use by the City and all expense incidental thereto.

Section 7.5 MONEY TO BE DRAWN FROM TREASURY IN ACCORDANCE WITH APPROPRIATIONS.

No money shall be drawn from the treasury of the City, nor shall any obligation for the expenditure of money be incurred, except in pursuance of the annual appropriation resolution or any of its amendments. At the close of each fiscal year any unencumbered balance of an appropriation shall revert to the fund from which appropriated and shall be subject to reappropriation as provided by this Charter.

Section 7.6 SALE OF CAPITAL ASSETS.

The proceeds from the sale of capital assets may not be used for recurring operational expenses. These proceeds shall be invested in accordance with the laws of Texas, until used for the purchase of other capital assets or to retire bonded debt.

Section 7.7 DEPOSITORIES.

All monies received by any person, in connection with the business of the City, shall be deposited. promptly in a City depository and, whenever possible, within one business day after its receipt.

All City bank accounts shall be carried in the name of the City, with such additional designations as are required to distinguish accounts for special purposes.

The City's investments shall be governed by a City Investment Policy which shall be adopted and reviewed as provided by state law, but in no event, shall the policy be adopted or reviewed by the Council less frequently than annually.

Section 7.8 PROPERTY TAX YEAR.

The tax year of the City shall begin on January 1st of each year.

Section 7.9 CITY PROPERTY.

City property of every nature, and its appurtenances, shall be exempt forever from City taxes, executions, attachments or forced sales.

Section 7.10 ASSESSMENT OF PROPERTY TAXES.

On January 1st of each year, or on any other date prescribed by the laws of Texas, each person, firm, business, partnership and corporation owning real or personal property in the City shall be subject to assessment for tax purposes, in accordance with the laws of Texas.

Section 7.11 PROPERTY TAX PAYMENTS.

All property taxes due the City shall be paid in legal tender at the office of the City Tax Collector or the designated depository. All taxes remaining unpaid after January 31st will be delinquent. The Council may, by ordinance, change the time and method of tax payments. The interest and penalty assessed on delinquent taxes shall accord with the laws of Texas.

Section 7.12 LEVYING OF PROPERTY TAXES.

Annually, the Council shall levy by ordinance on all property subject to property taxation by the City, a property tax not to exceed one dollar and eighty-five cents on each one hundred dollars of assessed valuation. The maximum tax provided shall not apply to the taxes required to be levied to pay the interest and principal on general obligation bonds. The Council shall levy taxes to retire bonds authorized in accordance with the laws of Texas.

No increase in the property tax rate shall be levied except by a majority of the entire Council at a regular meeting. Any levy of taxes to pay general obligation bonds shall not exceed the amount necessary to pay the interest and principal on such bonds.

Section 7.13 LEVY, ASSESSMENT AND COLLECTION OF OTHER MUNICIPAL TAXES.

The Council shall have power by ordinance to levy and collect occupation, license, franchise, hotel-motel occupancy taxes and other taxes, in a manner not inconsistent with the laws of Texas.

These taxes shall be collected by the Officer of the Comptroller or other designated officer, and shall be paid to that officer by each and every person or entity owing the tax.

Section 7.14 HOTEL OCCUPANCY TAX.

The City shall have the power to levy and collect a hotel-motel occupancy tax, as provided under the laws of Texas.

When this tax is levied by the Council, the proceeds shall be used as follows:

A. To the extent of the proceeds raised by a rate of one-half of one percent, to maintain, improve, administer and develop auditorium and convention center and related permanent improvements owned by the City;

B. To the extent of the proceeds raised by a rate of two and one-half percent, to pay the principal of and interest on bonds issued by the City to construct that auditorium and convention center and related permanent improvements;

C. To the extent of the proceeds raised by any additional rate, as may be established by the City Council, to fund any use authorized by the laws of Texas.

Once the principal and interest on bonds issued pursuant to this section are paid, the Council then may levy and use the hotel-motel occupancy tax only as provided by the laws of Texas.

Section 7.15 LIABILITY OF THE TAXPAYER.

A failure on the part of the City Tax Collector, or any other officer or employee who shall be designated by the Council, to prepare the delinquent tax roll or to mail tax statements, or a failure on the part of the City to file suits within the proper time for the collection of taxes when due, or any other omission, shall in no way affect the liability of the delinquent taxpayer. Neither shall it release the property upon which the tax is due from the operation of the lien, charge or encumbrance here created.

Section 7.16 AUTHORIZATION TO ISSUE BONDS.

All bonds issued by the City shall be authorized by ordinance. Where required by law, the bonds shall be approved by the Texas Attorney General and registered by the Texas Comptroller of Public Accounts before delivery to the purchaser.

Section 7.17 GENERAL OBLIGATION BONDS.

General obligation bonds may be issued for any lawful purpose in accordance with the laws of Texas and, where required by law, shall be issued only when authorized through a bond election.

The total principal amount of such bonds together with the principal amount of all other outstanding tax indebtedness of the City shall not exceed ten percent of the total assessed valuation of the City's tax rolls.

Section 7.18 REVENUE BONDS.

The City may issue revenue bonds only in accordance with the laws of Texas.

Section 7.19 DEBT SERVICE FUND.

Debt service funds created for the retirement of bonds shall be deposited in separate accounts in the City depositories and shall not be used except to pay interest and principal on those bonds. These debts service funds may be invested as allowed by the laws of Texas.

Section 7.20 DISBURSEMENT OF CITY FUNDS.

All disbursement of City funds shall be by check, electronic means, or as authorized by City ordinance.

Section 7.21 INDEPENDENT AUDIT.

As soon as practicable after the close of each fiscal year, an independent audit, in accordance with specifications defined by ordinance, shall be made of all accounts of the City by a certified public accountant selected by a majority of the Council. The accountant(s) shall have no substantial financial interest in the affairs of the City. The complete audit report must be available for public examination.

Section 7.22 PUBLISHING OF FINANCIAL POSITION OF THE CITY.

Within 120 days after the close of each fiscal year, the City shall publish in any contemporary means of information sharing including but not limited to publication in a newspaper of general circulation in the City or placement on the City's web site in the manner designated by the Council, a financial statement of the City prepared with generally accepted accounting principles for municipalities. This will be limited to balance sheets, statement of revenue and expenditures and changes in fund equities.

Section 7.23 LEASE AND LEASE PURCHASE.

The City may execute, perform, and make payments under a contract with any person for the use, purchase or other acquisition of any real or personal property, or the financing thereof, includ-

ing a lease, a lease with an option or option to purchase, an installment purchase or other form considered appropriate by the Council.

Article VIII ADOPTION AND TRANSITION

Section 8.1

This Charter shall be submitted to the qualified voters of the City at an election to be held for that purpose on the 21st day of January, 1984. The Council shall provide the form of ballot and conduct the election as required by law. The Charter Commission, in preparing this Charter, finds that by reason of the form of government provided herein and the nature of the provisions relating thereto, it is not practical to segregate each subject or article so as to permit a separate vote of "yes" or "no" thereon; and that it should be adopted in its entirety. Therefore, the Charter Commission directs that this Charter be voted upon as a whole. If a majority of those voting in such election are in favor of this Charter, it shall become the Charter of the City of El Paso, and after the returns have been canvassed, the Charter shall be declared adopted, at which time the existing Charter shall be repealed.

Section 8.2

Any person holding elective office under the Charter in force prior to the adoption of the preceding Articles shall continue in office until the expiration of the prescribed term, unless sooner removed under the laws of Texas or as prescribed in the above Articles.

Section 8.3

If any provision of this Charter is held to be invalid, it shall be deemed severable and its invalidity shall not affect the remaining provisions of this Article.

Section 8.4

All rights, action, fines, penalties and forfeitures, in suits or otherwise, which have accrued under the laws in force as of the date of adoption of this Charter, shall not be affected by the passage of this Charter.

Section 8.5

Any contract to which the City is a party, which is in effect at the adoption of this Article, is hereby ratified and shall remain in full force and effect according to the terms thereof.

Section 8.6

All ordinances, regulations, resolutions or parts thereof in force in the City and not in conflict with this Charter, shall remain in force until altered, amended, or repealed by the City Council. All existing ordinances, regulations, resolutions or parts thereof which conflict with this Charter are hereby expressly repealed.

Section 8.7 TRANSITIONAL PROVISION TO THE 2013 AMENDMENTS.

No amendment that is approved at the election on May 11, 2013 shall be effective unless and until the Voting Rights Section of the Civil Rights Division of the United States Department of Justice issues a letter interposing no objection to the implementation of the amendment, if voting rights review is required for the amendment. In the event that an objection is interposed to the amendments made in Section 2.1 A and B, the provisions of Section 2.1 A and B establishing the terms of office, as approved at the election on May 12, 2007, shall remain in force and effect.

CHARTER COMPARATIVE TABLE

This table shows the location of amendments to the Charter.

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				2.1 A., B.
				2.2 E.
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				6.8-1
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				6.10-1
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			Rpld	6.10-6, 6.10-7
				6.11-1
			Rpld	6.11-2
				6.12
				6.14

Ordinance Number	Approval Date	Election Date		Section this Charter
				7.4
				7.7
				7.17
				7.23
17977	3-26-2013	5-11-2013		2.1 A., B.
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				2.3 A.
				2.4 A.
				8.7
18401	8-11-2015	11- 3-2015		1.2
				3.5 A.
				3.5 D.
				3.7 A.
				3.5 E.
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				7.1
			Added	7.1 A.
				7.2
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				7.3 B.
				7.3 C.
				7.3 D.
18812	7-10-2018	11- 6-2018		3.2
Res. of 05-23-2023(1)	5- 6-2023	5- 6-2023		3.5 A.
				3.9 B.
				3.10 B.
				3.20 B.
				6.1-12
				6.13-11 D.

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CODE ADOPTION

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1.01.030 Reference applies to all amendments.
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1.01.080 Additions and deletions.
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1.01.010 Adoption.

There is adopted the El Paso City Code, as compiled, edited and published by Book Publishing Company, Seattle, Washington, with such additions or deletions as are included in Section 1.01.080 of this chapter. (Ord. 8773 § 1, 1986)

1.01.020 Title—Citation—Reference.

This code shall be known as the El Paso Code and it shall be sufficient to refer to the code as the El Paso City Code in any prosecution for the violation of any provision thereof or in any proceeding at law or equity. It shall be sufficient to designate any ordinance adding to, amending, correcting or repealing all or any part or portion of the El Paso City Code. Further reference may be had to the title, chapters, sections and subsections of the El Paso City Code and such references shall apply to that numbered title, chapter, section or subsection as it appears in the code. (Ord. 8773 § 2, 1986)

1.01.030 Reference applies to all amendments.

Whenever a reference is made to this code as the El Paso City Code or to any portion thereof, or to any ordinance of the city of El Paso, Texas, codified in this code, the reference shall apply to all amendments, corrections and additions heretofore, now or hereafter made. (Ord. 8773 § 3, 1986)

1.01.040 Title, chapter and section headings.

Title, chapter and section headings contained in this code shall not be deemed to govern, limit, modify or in any manner affect the scope, meaning or intent of the provisions of any title, chapter or section hereof. (Ord. 8773 § 4, 1986)

1.01.050 Reference to specific ordinance.

The provisions of this code shall not in any manner affect matters of record which refer to, or are otherwise connected with ordinances which are therein specifically designed by number or otherwise and which are included within the code, but such reference shall be construed to apply to the corresponding provisions contained within this code. (Ord. 8773 § 5, 1986)

1.01.060 Effect of code on past actions and obligations.

Neither the adoption of this code nor the repeal or amendments of any ordinance or part or portion of any ordinance of the city of El Paso, Texas, shall in any manner affect the prosecution for violations of ordinances, which violations were committed prior to the effective date of the adoption of this code, nor be construed as a waiver of any license, fee or penalty at such effective date due and unpaid under such ordinances, nor be construed as affecting any of the provisions of such ordinances relating to the collection of any such license, fee or penalty, or the penal provisions applicable to any violation thereof, nor to affect the validity of any bond or cash deposit in lieu thereof required to be posted, filed

or deposited pursuant to any ordinance and all rights and obligations appertaining shall continue in full force and effect. (Ord. 8773 § 6, 1986)

1.01.070 Constitutionality.

If any section, subsection, sentence, clause or phrase of this code is for any reason held to be invalid or unconstitutional, such decision shall not affect the validity of the remaining portions of this code. The council declares that it would have passed this code, and each section, subsection, sentence, clause and phrase thereof, irrespective of the fact that any one or more sections, subsections, sentences, clauses or phrases has been declared invalid or unconstitutional, and if for any reason this code should be declared invalid or unconstitutional, then the original ordinance or ordinances shall be in full force and effect. (Ord. 8773 § 7, 1986)

1.01.080 Additions and deletions.

A. Chapter 5.24 shall read as amended by Ordinance 7968, passed on January 17, 1984.

B. Chapter 2.28 shall read as amended by Ordinance 6628, passed on June 26, 1979. (Ord. 8773 § 8, 1986)

1.01.090 Ordinances adopted prior to code.

The last ordinance included in this code was Ordinance 8288, passed on February 26, 1985. Ordinances 8289 through 8770 which were passed subsequent to Ordinance 8288, but prior to the adoption of this code, are adopted and made a part of this code. Any ordinance which was adopted prior to the adoption of this code and which is in effect at the date of adoption of this code, but which was not printed in this code, either by design or mistake, shall not deemed to be repealed by the adoption of this code and shall remain in effect until further amended or repealed. (Ord. 8773 § 9, 1986)

1.01.100 Prior code.

All prior codifications of the general ordinances of the city of El Paso are superceded by the codification adopted in this chapter. (Ord. 8773 § 10, 1986)

Chapter 1.04

GENERAL PROVISIONS

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1.04.010 Citation.

1.04.020 Intent.

1.04.030 Definitions and rules of construction.

1.04.040 Headings and subheadings.

1.04.050 Repeal not to revive—Pending actions, penalties.

1.04.060 Severability.

1.04.070 Vesting of projects.

1.04.010 Citation.

The ordinances embraced in the following chapters and sections shall constitute and be designated the "Code of The City of El Paso," and may be so cited. It may also be cited as "El Paso City Code." (Prior code § 1-1(a))

1.04.020 Intent.

It is the intent of this code to embody all penal ordinances (meaning ordinances the violation of which is punishable by a fine), but only such civil ordinances as are of general interest. All penal ordinances which were in effect on May 20, 1960, and are not included herein, are repealed. Civil ordinances not included herein are not repealed, except to the extent of conflict herewith. Provided, if there be a penal provision in any ordinance of any of the following types, such ordinance is nevertheless not repealed by this code, although not included herein: ordinances pertaining to the public debt or public credit, the levy or assessment of taxes, the appropriation of money, the making of any contract by the city or for its benefit, the granting of any franchise, the levying of any special benefit assessment or lien, or the annexation of any territory; and the repeal of any ordinance by this code shall not release any person from the duty to comply with any condition or limitation upon which he acquired any right under such repealed ordinance. (Prior code § 1-1(b))

1.04.030 Definitions and rules of construction.

In the construction of this Code, and of all ordinances, the following rules shall be observed, unless the context clearly indicates otherwise:

A. City, offices. The words "the city" or "this city" mean the City of El Paso, and the title or name of any office, agency or department means the office, agency or department of the city.

B. City observed holiday. The words "city observed holiday" or "city recognized holiday" means a legal holiday as well as a holiday recognized and observed as provided for in Ordinance 8064 of the City of El Paso, as amended.

C. County. The words "the county" or "this county" means and refers to El Paso County, Texas.

D. Gender. The masculine gender shall include the feminine and the neuter.

E. Established fee. The words "established fee" mean a fee that is authorized in this Code or any ordinance which is set in the amount identified in the adopted budget resolution for the current fiscal year or by other appropriately adopted resolution of the city council.

F. Legal holiday. The words "legal holiday" or "city holiday" mean the first day of January (New Years Day), the third Monday in January (Martin Luther King Holiday), the last Monday in May (Memorial Day), the fourth day of July (Independence Day), the first Monday in September (Labor Day), the fourth Thursday in November (Thanksgiving Day), the Friday after Thanksgiving Day, and the twenty-fifth day of December (Christmas Day).

G. Number. The singular number includes the plural.

H. Oath. The word "oath" shall include an affirmation in all cases in which, by law, an affirmation may be substituted for an oath, and in such cases the words "swear" and "sworn" shall be equivalent to the words "affirm" and "affirmed."

I. Permit official. The words "permit official" mean the person or persons designated by the city

manager as being responsible for issuing permits, licenses or making any other authorization provided for in this Code or any ordinance.

J. Person. The word "person" shall include associations, clubs, societies, firms, partnerships and corporations as well as individuals or groups of individuals.

K. Planning official. The words "planning official" mean the director of the city department or other qualified employee designated by the city manager to implement or enforce the provisions of this Code, to include but not be limited to Titles 19, 20 and 21, or any ordinance and those person's designees, and all other designees of the city manager.

L. State. The words "the state" or "this state" shall refer to the State of Texas.

M. Street. The word "street" shall embrace streets, avenues, boulevards, drives, roads, alleys, lanes, viaducts and all other public highways in the city. (Prior code § 1-2)

(Ord. No. 17338, § 1, 6-1-2010; Ord. No. 17387, § 1, 8-24-2010, eff. 9-1-2010)

1.04.040 Headings and subheadings.

The headings and subheadings in this code are for convenience in searching only, and are not intended to limit or expand the text. (Prior code § 1-3)

1.04.050 Repeal not to revive—Pending actions, penalties.

The repeal of any prior ordinance by any subsequent ordinance shall not operate to revive any ordinance which may have been repealed by such prior ordinance, unless such revival be expressly provided for. Ordinances repealed remain in force for the trial and punishment of all past violations of them, and for the recovery of penalties and forfeitures already incurred. (Prior code § 1-4)

1.04.060 Severability.

The sections, paragraphs, sentences, clauses, phrases and words of this code are severable, and if any thereof shall be held void by the valid judgment of any court of competent jurisdiction, such invalidity shall not affect any of the remaining parts of the code. (Prior code § 1-5)

1.04.070 Vesting of projects.

A. Purpose. The purpose of this section is to establish a process and procedure for the issuance of local permits for projects in accordance with the provisions of Texas Local Government Code, Chapter 245 or successor statute.

B. *Applicability.* This section shall be applicable to permits issued under the City Code. An applicant requesting approval of a permit shall pay the established fee and submit a vested rights application to the city if the applicant believes that the permit is for a project that has been vested. A permit, for purposes of determining whether a project is vested, is defined as a license, certificate, approval, registration, consent, permit, contract or other agreement for construction related to, or provision of, service from a water or wastewater utility owned, operated, or controlled by a regulatory agency, or other form of authorization required by law, rule, regulation, order, or ordinance that a person must obtain to perform an action or initiate, continue, or complete a project for which the permit is sought. A vested rights application may also be filed prior to the expiration of certain permits pursuant to Section 19.41.060.

C. Application. The vested rights application shall be submitted to the department responsible for issuing the permit. The application shall include the following information and documents:

1. A narrative description of the grounds for submittal of the application;

2. A copy of each approved or pending application which is the basis for the contention that the project or permit is vested;

3. The date of submittal of the application for the permit which the applicant contends vests the project;

4. Any subsequent applications submitted or permits issued towards completion of the project;

5. Identification of any current standards which petitioner agrees can be applied to the application at issue;

6. A copy of any prior vested rights determination involving the same land; and

7. Whenever the petitioner alleges that a permit or project subject to expiration under this section should not be terminated, a description of the event or events constituting progress toward completion of the project.

D. Time for filing application. A vested rights application shall be filed with the permit for which a vested right is claimed or at a date prior to the date of expiration of any permit when filed pursuant to Section 19.41.060.

E. Processing of applications.

1. Responsible official. The responsible official for a vested rights application is the City Manager or her designee.

2. Responsible official decision. The responsible official is the decision-maker on the application, and shall determine whether the project is vested and shall formulate a written response summarizing the reasoning and setting forth the decision. After reviewing the application for completion, the responsible official shall promptly forward a copy of the completed vested rights application, and any other documentation the responsible official deems necessary, to the city attorney for their review. The responsible official's written response shall be delivered to the applicant within ten business days of the date the vested rights application is filed with the responsible official.

F. Appeal of responsible official decision.

1. The applicant may appeal the responsible official's decision to the city council within ten business days of the date of such decision.

2. An applicant wishing to appeal the decision shall submit in writing such request stating the reasons for the appeal and providing the necessary documents to support the appeal to the responsible official.

3. If after receipt of the written appeal and review of the accompanying documents the responsible official determines that its initial decision should be reversed, then the responsible official may reconsider its initial decision and reverse such decision. The responsible official shall state in writing the reason for the reversal and shall notify the appellant in writing. If the responsible official does not reverse its initial decision, then the appeal shall be submitted to the city council by the responsible official.

4. The appeal shall be placed on the city council agenda by the responsible official within fifteen business days after the date the responsible official received the written appeal. Documents submitted by the appellant shall be included as back up for the appeal and any documentation or information the responsible official determines is necessary or will assist the city council in making their determination shall also be included.

5. The city council shall render a decision within thirty business days from the date the item is placed on the city council agenda. City council shall decide the vested rights appeal based upon the following factors:

a. The nature and extent of prior applications filed for the land subject to the vested rights application;

b. Whether any prior vested rights determinations have been made with respect to the property subject to the vested rights application;

c. Whether any prior approved applications for the property have expired or have been terminated in accordance with law;

d. Whether any statutory exception applies to the standards in the current subdivision ordinance from which the applicant seeks relief;

e. Whether any prior approved applications relied upon by the petitioner have expired or have become dormant;

f. Whether progress has been made on the project or whether the project has become dormant; and

g. Any other provisions outlined in the Texas Local Government Code Chapter 245 or successor statute.

G. Stay of proceedings. Receipt of a written appeal of a decision stays all proceedings of the

city in furtherance of the decision from which appeal is taken, including without limitation, acceptance, processing or issuance of any applications that are dependent on the application being appealed, and any development activities authorized by initial approval of the application. The stay shall be lifted only if the responsible official certifies in writing to the appellate authority that a stay would cause imminent peril to life or property.

H. Dormant permits and projects. Projects that become dormant shall not be entitled to vested status. A project becomes dormant and the project expires when progress toward completion of the project has not occurred.

1. A permit under this section means a license, certificate, approval, registration, consent, permit, contract or other agreement for construction related to, or provision of, service from a water or wastewater utility owned, operated, or controlled by a regulatory agency, or other form of authorization required by law, rule, regulation, order, or ordinance that a person must obtain to perform an action or initiate, continue, or complete a project for which the permit is sought.

2. For purposes of determining whether a project is still vested or has become dormant, any permit issued by the city not otherwise having a permit expiration period shall expire two years after the issuance of the permit if no progress has been made towards completion of the project.

3. A project shall expire after the fifth anniversary of the date in which the first permit application was filed for the project if no progress has been made towards completion of the project.

4. Progress towards completion of the project shall include any one of the following:

a. An application for a final plat or plan is submitted to a regulatory agency;

b. A good-faith attempt is made to file with a regulatory agency an application for a permit necessary to begin or continue towards completion of the project;

c. Costs have been incurred for developing the project including, without limitation, costs associated with roadway, utility, and other infrastructure facilities designed to serve, in whole or in part, the project (but exclusive of land acquisition) in the aggregate amount of five percent of the most recent appraised market value of the real property on which the project is located;

d. Fiscal security is posted with a regulatory agency to ensure performance of an obligation required by the regulatory agency; or

e. Utility connection fees or impact fees for the project have been paid to a regulatory agency.

I. Vesting does not apply to:

1. A permit that is at least two years old, is issued for the construction of a building or structure intended for human occupancy or habitation, and is issued under laws, ordinances, procedures, rules, or regulations adopting only:

a. Uniform building, fire, electrical, plumbing, or mechanical codes adopted by a recognized national code organization; or

b. Local amendments to those codes enacted solely to address imminent threats of destruction of property or injury to persons;

2. Municipal zoning regulations that do not affect landscaping or tree preservation, open space or park dedication, property classification, lot size, lot dimensions, lot coverage, or building size or that do not change development permitted by a restrictive covenant required by a municipality;

3. Regulations for sexually oriented businesses;

4. Municipal or county ordinances, rules, regulations, or other requirements affecting colonias;

5. Fees imposed in conjunction with development permits;

6. Regulations for annexation that do not affect landscaping or tree preservation or open space or park dedication;

7. Regulations for utility connections;

8. Regulations to prevent imminent destruction of property or injury to persons from flooding that are effective only within a flood plain established by a federal flood control program and enacted to prevent the flooding of buildings intended for public occupancy;

9. Construction standards for public works located on public lands or easements; or

10. Regulations to prevent the imminent destruction of property or injury to persons if the regulations do not:

a. Affect landscaping or tree preservation, open space or park dedication, lot size, lot dimensions, lot coverage, building size, residential or commercial density, or the timing of a project; or

b. Change development permitted by a restrictive covenant required by a municipality.

(Ord. No. 17540, § 1, 4-19-2011; Ord. No. 18065, § 1, 8-20-2013)

Chapter 1.08

GENERAL PENALTY

Sections:

1.08.010 Designated.
1.08.020 Separate offenses.
1.08.030 Violations declared to be nuisances.
1.08.040 Violations include causing, procuring, aiding or abetting.
1.08.050 Applicability of State Criminal Code definitions.
1.08.060 Fines and costs—Discharged when.
1.08.070 Requiring prisoners to labor.
1.08.080 Requirement of culpability.

1.08.010 Designated.

Whenever in this code or in any ordinance of the city an act is prohibited or is made or declared to be unlawful or an offense or a misdemeanor, or whenever in such code or ordinance the doing of any act is commanded or the failure to do any act is made or declared to be unlawful or an offense or a misdemeanor, the violation of any such provision shall be deemed a misdemeanor and shall be punished by a fine not exceeding five hundred dollars. Provided, however, if a different penalty by fine is specifically provided for any act or omission, such penalty shall apply; and provided further, if any violation is also a penal offense under any law of this state, the penalty imposed by this code shall be the same as the penalty imposed by the state law. (Ord. 9430 § 1, 1988: prior code § 1-6(a))

1.08.020 Separate offenses.

In the case of a continuing violation each day's violation shall be deemed a separate offense. (Prior code § 1-6(b))

1.08.030 Violations declared to be nuisances.

In addition to the penalties otherwise provided, any condition caused or permitted to exist in violation of any provision of this code or any ordinance, which provision is intended for the protection of the public health, safety or morals, shall be deemed a public nuisance and may be abated by the city as provided by law. (Prior code § 1-6(c))

1.08.040 Violations include causing, procuring, aiding or abetting.

The prohibition of any act in this code, and in any rule or regulation adopted hereunder, shall include the causing, procuring, aiding or abetting of another person to do such act. (Prior code § 1-7)

1.08.050 Applicability of State Criminal Code definitions.

Whenever in this code or the penal ordinances of the city an offense is named, but not defined, the definition of such offense contained in the criminal code of the state shall apply, so far as applicable. (Prior code § 1-8)

1.08.060 Fines and costs—Discharged when.

When the judgment against the defendant is for a pecuniary fine and the costs of prosecution, he shall be discharged from the same when the amount of such fine and costs has been fully paid, when the same has been remitted by the proper authorities; or, when the defendant has remained in custody the length of time required by law to satisfy the amount of such judgment. (Prior code § 1-9)

1.08.070 Requiring prisoners to labor.

In cases of emergency when the mayor deems that the public safety or welfare requires the labor of persons confined in the city jail for nonpayment of fines, he may order the use of labor of such persons as are physically fit therefor. (Prior code § 1-10)

1.08.080 Requirement of culpability.

In accordance with Texas Penal Code Ann. Section 6.02b (Vernon 1974), a culpable mental

state is not required for the commission of an offense under this code unless the provision defining the conduct expressly requires a culpable mental state. (Ord. 9792, 1989)

Chapter 1.12

RIGHT OF ENTRY FOR INSPECTION

Sections:

1.12.010 When.
1.12.020 Search warrants.

1.12.010 When.

Whenever necessary to make an inspection to enforce any of the provisions of this code, or whenever an authorized city official or his authorized representative has reasonable cause to believe that there exists in any building or upon any premises any condition or code violation which makes such building or premises unsafe, dangerous or hazardous, the authorized city official or his authorized representative may enter such building or premises at all reasonable times to inspect the same or to perform any duty imposed upon the authorized city official by this code; provided, that if such building or premises be occupied, he shall first present proper credentials and request entry; and if such building or premises be unoccupied, he shall first make a reasonable effort to locate the owner or other persons having charge or control of the building or premises and request entry. If such entry is refused, the authorized city official or his authorized representative shall have recourse to every remedy provided by law to secure entry. (Prior code § 15-41 (part))

1.12.020 Search warrants.

When the authorized city official or his authorized representative shall have first obtained a proper inspection warrant or other remedy provided by law to secure entry, no owner or occupant or any other persons having charge, care or control of any building or premises shall fail or neglect, after proper request is made as herein provided, to promptly permit entry therein by the authorized city official or his authorized representative for the purpose of inspection and examination pursuant to this code. (Prior code § 15-41 (part))

Chapter 1.16

ARRESTS

Sections:

1.16.010 Persons violating law or found under suspicious circumstances.

1.16.010 Persons violating law or found under suspicious circumstances.

A. The police officers of the city shall, with or without warrant, arrest all persons found in the act of violating any law or ordinance, and shall arrest all persons found under suspicious circumstances.

B. The police officers of the city shall, with or without warrant, arrest all persons found in suspicious places, or under circumstances which reasonably show that such persons have been guilty of some felony or breach of the peace, or threaten, or are about to commit some offense against the laws. (Prior code § 15-1)

Title 2

ADMINISTRATION AND PERSONNEL

Chapters:

2.04	**Boards, Commissions and Committees Generally**
2.06	**Procedures For Placing Matters on the Agenda of the City Council**
2.08	**City Plan Commission**
2.10	**City Development Department**
2.12	**Community Relations Commission**
2.16	**Zoning Board of Adjustment**
2.20	**Reserved**
2.22	**Reserved**
2.24	**Historic Landmark Commission**
2.28	**Reserved**
2.30	**Construction Appeals**
2.34	**El Paso Water Utilities Public Service Board**
2.38	**Building and Standards Commission**
2.40	**Department of Museums and Cultural Affairs**
2.44	**Courts**
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2.68	**Economic Development Loan Board**
2.70	**Border Patrol Local Accountability Commission**
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2.77	**Reserved**
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2.94	**Regulation of Lobbying Activities**

2.102 Neighborhood Association Recognition

2.110 City Organizational Structure

Chapter 2.04

BOARDS, COMMISSIONS AND COMMITTEES GENERALLY

Sections:

2.04.010 Uniform bylaws.

2.04.020 Meetings—Minutes—Recordkeeping requirements.

2.04.030 Subpoenas—Issuance authority.

2.04.040 Holding over prohibited.

2.04.050 Term limitations.

2.04.010 Uniform bylaws.

A. All city boards and commissions established by the city will adopt and implement the city uniform bylaws. The city uniform bylaws will be the standard bylaws for all city boards unless otherwise specified by the City Charter, state law, federal law, or other applicable law.

B. The city manager and city clerk may recommend amendments to the city uniform bylaws. Proposed amendments will be submitted in writing to the city clerk, who will forward them to the city council for consideration and approval by simple majority.

(Ord. No. 019766, § 1, 8-5-2025)

Editor's note—Ord. No. 019766, § 1, adopted Aug. 5, 2025, repealed the former § 2.04.010, and enacted a new § 2.04.010 as set out herein. The former § 2.04.010 pertained to meetings—excessive absences and derived from the prior code § 2-3.2.

2.04.020 Meetings—Minutes—Recordkeeping requirements.

A. All duly constituted boards and commissions of the city are required to file their meetings with the city clerk of the city. The original minutes will be filed with the city clerk upon approval by the appropriate board and commission.

B. The city clerk is required to maintain a file of the minutes of the meetings of all boards and commissions for inspection by the mayor and council and the public.

C. The city clerk is authorized to require a uniform format of such minutes. (Prior code § 2-3.2.1)

(Ord. No. 019766, § 2, 8-5-2025)

2.04.030 Subpoenas—Issuance authority.

The city council, and every commission or board of the city having authority to conduct hearings, shall be empowered to issue subpoenas and subpoenas duces tecum and to compel the giving of evidence at such hearings, upon any matter within their jurisdiction. (Prior code § 2-3)

2.04.040 Holding over prohibited.

When the term of office of any member of any city board or commission expires, the member shall continue to serve until his successor is appointed and qualified, or until thirty days have passed following the expiration of the term, whichever event occurs first. Any holding over past the thirty-day period is prohibited, and after that time a vacancy in the board shall exist and the former member shall have no power to vote or participate in board proceedings; but such vacancy shall not serve to reduce the number of members required for a quorum. This section shall not apply to boards or commissions created by Charter, joint agreement with other political subdivisions, or pursuant to state statute; or to officers, where state law would prohibit such disqualification; or to the photographic traffic signal enforcement system advisory board or the community development steering committee for citizen participation. (Ord. 11040, 1992; Ord. 9328, 1988: Ord. 9052, 1987)

(Ord. 17206, § 1, 9-22-2009)

2.04.050 Term limitations.

No person who has been appointed to two consecutive terms as a regular member of any board created by ordinance shall be eligible for reappointment as a regular member to the same board for the next consecutive term. No person who has been appointed to two consecutive terms as an alternate member of any board created by ordinance shall be eligible for reappointment as an alternate member to the same board for the next

consecutive term. No person who has served four consecutive terms as regular and alternate members shall be eligible for reappointment to the same board for the next consecutive term. (Ord. 13014, 1996: Ord. 4005, 1968)

Chapter 2.06

PROCEDURES FOR PLACING MATTERS ON THE AGENDA OF THE CITY COUNCIL*

Sections:

2.06.010 Conformity of agenda items.

2.06.020 Timely submission.

2.06.030 Request to place an item on the agenda.

2.06.040 Summary explanation and back-up materials.

2.06.050 Items of urgent public necessity.

2.06.060 Special meetings and informal work sessions.

2.06.070 Timely submission of proposed legal documents.

2.06.080 Review of resolutions, contracts and ordinances by city attorney.

2.06.090 Written fiscal note prepared by city manager.

2.06.100 Executive session items.

2.06.110 Placement of items on the agenda by city council members.

2.06.010 Conformity of agenda items.

The city clerk is hereby directed to place items on the agenda of a regular meeting of the city council only in conformity with Texas State law, the provisions of this chapter and any procedures established by the Rules of Order for the city council.

(Ord. No. 18746, §§ 1, 2, 11-28-2017)

2.06.020 Timely submission.

Unless otherwise provided in this chapter, and separate from administrative agenda review deadlines and procedures, the city clerk shall place on the city council agenda of a regular meeting of the city council only those items that are timely submitted, as follows:

1. Deadline for Placement. The deadline shall be at or before 12:00 p.m. on Tuesday prior to the council meeting at which discussion or action is requested, unless a holiday or any other purpose interferes with being able to post at least three business days before the scheduled meeting date. In such event, the deadline for placement is as directed by the city clerk to meet the three business day posting deadline.

2. Late Placement. An item received after the deadline may be placed on the agenda if the agenda has not yet been posted, or as an "addition to the agenda" if the agenda has already been posted, if the request is received by 3:00 p.m. on Wednesday and allows for at least three business days to post the agenda prior to the meeting and if the request is accompanied by an authorization of the mayor, the city manager or his or her designated deputy city manager, or the city attorney, and contains all back-up material. The authorization for late placement on the agenda shall be made in writing, by electronic mail, or by any other electronic means. If the regular agenda has already been posted, approved additions to the agenda may be posted up to 3:00 p.m. on Wednesday and allows for at least three business days to post the agenda before a Tuesday city council meeting.

a. No item that is not timely submitted will be placed on the agenda except for an urgent public necessity (UPN) as provided in Section 2.06.050 of this Code.

3. City Clerk Authority. The city clerk is authorized to establish revised deadlines for placement of agenda items and the submission of back-up material as necessary to enable him or her to post the agenda in conformity with state law and the city's practice of allowing adequate time for the members of the city council to study the agenda items. This includes the city hall being closed for a city holiday or for any other purpose on a Tuesday, Wednesday, Thursday, or Friday.

a. If the city council should change the day of its regular meeting from a Tuesday, the resolution

***Editor's note—**Ord. No. 18746, §§ 1—12, adopted Nov. 28, 2017, repealed the former Ch. 2.06, §§ 2.06.010—2.06.060, and enacted a new Ch. 2.06 as set out herein. The former Ch. 2.06 pertained to similar subject matter and derived from Ord. No. 18031, adopted July 2, 2013; Ord. No. 18390, § 1.1, adopted July 21, 2015; Ord. No. 18466, adopted Feb. 23, 2016.

changing the day of the meeting may include any adjustment to the deadlines for placement of agenda items. If the resolution is silent as to such adjustment, the city clerk is authorized to establish revised deadlines for placement of agenda items and the submission of back-up material as are necessary to enable him or her to post the agenda in conformity with state law and the city's practice of allowing adequate time for the members of the city council to study the agenda items.
(Ord. No. 18746, §§ 1, 2, 11-28-2017; Ord. No. 019780, § 1, 8-19-2025)

2.06.030 Request to place an item on the agenda.

Any request to place an item on the agenda shall come from or through a city official or employee and shall be made in writing, by electronic mail, or by any other electronic means. All requests shall include the name and telephone number of the individual making the request, the department name if applicable, and the name and telephone number of a contact person as will be listed on the agenda.
(Ord. No. 18746, §§ 1, 2, 11-28-2017)

2.06.040 Summary explanation and back-up materials.

The head of each department on whose behalf an item is placed on the agenda shall submit to the city clerk, a summary explanation and any other back-up material for those agenda items related to his or her department that will be posted with the agenda on the city's website no later than 12:00 p.m. on the Wednesday before the meeting at which discussion or action is to take place. Any additional back-up that may be provided separately to each member of the city council and the city manager shall be submitted no later than 4:00 p.m. on the Wednesday before the meeting at which discussion or action is to take place.

If any item placed on the agenda at the request of a city council member specifically relates to a city department which is readily identifiable by the city clerk, the city clerk shall notify the head of the affected department of such item.
(Ord. No. 18746, §§ 1, 2, 11-28-2017; Ord. No. 019780, § 2, 8-19-2025)

2.06.050 Items of urgent public necessity.

Items of urgent public necessity (UPN) may be placed on the agenda after the above deadlines and up until to two hours before the Council meeting at which action or discussion is requested, upon receipt by the city clerk of a written request having the signature of a member of the city council, the city manager or the city attorney. This request must be justified through the city attorney's office as a matter of urgent public necessity.

When a matter of urgent public necessity is placed on the agenda, the city clerk shall immediately notify all members of the city council, and shall also notify the head of any department to which the item applies if the item was not placed on the agenda by that department, and the department of information technology services. The head of the department to which the item applies shall provide each member of the city council a written summary of the item including an explanation of why emergency action is necessary, on or before 5:00 p.m. on the day before the city council meets if the item is placed on the agenda prior to this deadline.

In addition to posting the public notice of an emergency meeting or supplementing a notice with an emergency item, the city clerk must give special notice of the emergency meeting or emergency item to members of the news media who have previously filed a request with the city and agreed to reimburse the city for providing the special notice. The notice to members of the news media is to be given by telephone or electronic mail.
(Ord. No. 18746, §§ 1, 2, 11-28-2017)

2.06.060 Special meetings and informal work sessions.

In accordance with Section 3.5A of the City Charter, special meetings and informal work ses-

sions may be called by the mayor or by a majority of the entire city council. Such call shall be directed in writing to the city clerk. In such cases, the notice of the meeting and the agenda must be posted in accordance with the requirements contained in the Texas Open Meetings Law.
(Ord. No. 18746, §§ 1, 2, 11-28-2017)

2.06.070 Timely submission of proposed legal documents.

A copy of all proposed legal documents, including resolutions, contracts and ordinances shall be delivered to the mayor and each representative by the responsible department at the time the proposed legal document is placed on the agenda, or shall be submitted to the city clerk for posting on the city's website as provided in Section 2.06.040. If a copy of any proposed legal document has not been provided or made available to each member of the city council by noon on the fourth business day before the city council meeting, the city council may, at its option, table action on that document.
(Ord. No. 18746, §§ 1, 2, 11-28-2017; Ord. No. 019780, § 3, 8-19-2025)

2.06.080 Review of resolutions, contracts and ordinances by city attorney.

All resolutions, contracts and ordinances shall be reviewed, approved as to form, and signed by the city attorney or designee before they are placed on the city council agenda. Agenda items requesting the expenditure of money or the transfer of funds among budgeted accounts must state the amount of money involved and, either in the posted item or in an attachment made available in the city clerk's office and posted on the city's website, indicate the name and number of the account from which the expenditure shall be made, and the accounts to and from which the transfer will be made and the justification and purpose for the transfer. The department proposing the expenditure or budget transfer shall provide the city manager's office such details and support data as required to permit a timely and orderly review.
(Ord. No. 18746, §§ 1, 2, 11-28-2017)

2.06.090 Written fiscal note prepared by city manager.

The city manager's office is instructed to prepare a written fiscal note identifying any agenda item for which there is not a current appropriation. The city manager's officer will also prepare a fiscal note on agenda items which involve substantial indirect costs or continuing costs or which represent a departure from the budget or standard procedures. Fiscal notes shall be provided to the mayor, representatives and city manager on the Friday prior to the council meeting. In the case of additions to the agenda, the city manager's office shall respond as soon as possible. The mayor, any representative or the city manager can request a fiscal note on any agenda item.
(Ord. No. 18746, §§ 1, 2, 11-28-2017)

2.06.100 Executive session items.

In accordance and to assure compliance with applicable state law, executive session items may only be placed on the agenda with the approval of the city attorney or his or her designee. The city clerk will place any executive session item requested by the city attorney at any time, up to the time the agenda has been posted, or as an addition to the agenda as provided for in Section 2.06.020.
(Ord. No. 18746, §§ 1, 2, 11-28-2017)

2.06.110 Placement of items on the agenda by city council members.

Members of city council may place items on the agenda for meetings of the city council as follows:

Special City Council Meetings/Informal Work Sessions. City council representatives may place items on any agenda for a special city council meeting/informal work sessions called in accordance with Section 3.5A of the El Paso City Charter by notifying the mayor, city manager and city clerk prior to the posting of the agenda for the respective special city council meeting/informal work sessions.

City Council Reporting and Appointments. City council representatives may place matters re-

lating to appointments to boards and commissions, financial reporting, campaign contributions, donations received, gifts, or any other reporting requirements arising from the charter, state law or applicable law on any city council agenda by providing notice to the city clerk by 12:00 p.m. on the Tuesday before the city council meeting to be held on the following Tuesday.

City Council Presentations. City council representatives may place items on the city council agenda to allow for presentations by the respective city council member on any city council agenda by providing notice to the city clerk by 12:00 p.m. on the Tuesday before the city council meeting to be held on the following Tuesday. The city council presentations shall not require input or work by members of city staff and the only action to be requested by the respective council member shall be approval of resolutions in support of a measure, request for a subsequent agenda item, or a request for additional work from staff; if approved by a majority of city council.

Request for Action. City council representatives may place items on the city council agenda. The deadline for submission to the city clerk is Tuesday at 12:00 p.m. the week before a Tuesday city council meeting. Upon receipt of a submittal from a city council member, the clerk will schedule the item for the next Tuesday city council meeting following the submittal. The item shall not be removed from the agenda without the consent of the member who made the submittal.

Agenda Items Placed by Mayor. The mayor may place items on any agenda of the city council in accordance with the terms of the city charter and applicable state law.

Adequate Back-up For Agenda Items. All submissions from city council representatives and the mayor must be accompanied by adequate back-up to provide the council members, public and city staff with sufficient information to ascertain the details of the topic and action that will be requested. The city clerk will not post an item on the agenda if the request for submission is not accompanied by a fully completed "agenda summary" in the form provided by the city clerk. The agenda summary shall be the minimum amount of back-up acceptable.

(Ord. No. 18746, §§ 1, 2, 11-28-2017; Ord. No. 019780, § 4, 8-19-2025)

Chapter 2.08

CITY PLAN COMMISSION

Sections:

2.08.010 Creation—Membership.

2.08.020 Terms.

2.08.030 Removal.

2.08.040 Members not to hold other public offices—Exception.

2.08.050 Chairman and vice-chairman—Rules and regulations.

2.08.060 Duties—Generally.

2.08.070 Submission of plans for advice and consultation—Public building erection, location and construction plans.

2.08.080 Submission of plans for advice and consultation—Street or sewer system, park or parking strip alteration plans.

2.08.090 Submission of plans for advice and consultation—Recommendations and reports to council.

2.08.100 Submission of plans for advice and consultation—Plans referred by city council—Action thereon by city council.

2.08.110 City planning—Duty to keep informed on, study and recommend improvements.

2.08.120 Zoning plan formulation and submission.

2.08.130 Housing condition reports and recommendations.

2.08.140 Water supply study, investigation and reports.

2.08.150 Annual reports to council.

2.08.160 Climate and sustainability.

2.08.010 Creation—Membership.

The city plan commission shall consist of nine members who shall be resident citizens of El Paso. They shall be appointed in the manner provided by the City Charter. (Ord. 16977 § 1, 2008: Ord. 13152 § 1, 1997: prior code § 2-5 (part))

2.08.020 Terms.

A. The terms of office for members of the commission, other than the ex officio members, shall be two years and the first commission members' terms shall be staggered by eight-month terms according to the following schedule:

1. Three members shall be appointed for an eight-month term;

2. Three members shall be appointed for a sixteen-month term;

3. Three members shall be appointed for a twenty-four-month term beginning upon the first appointments after May 2, 1957.

B. Upon the expiration of the eight-month term the members in this group will then be appointed for a full two-year term. Upon the expiration of the sixteen-month term the members in this group will then be appointed for their two-year terms, thus staggering the appointment setup so that no more than three members shall be reappointed in any one given eight-month term. (Prior code § 2-5 (part))

2.08.030 Removal.

The members of the commission shall serve until their successors are appointed and shall be subject to removal under the terms of the City Charter concerning officers appointed by the mayor. (Prior code § 2-5 (part))

2.08.040 Members not to hold other public offices—Exception.

No member of the city plan commission, other than the ex officio members, shall hold any other public office of honor, trust or profit in the government of the city or county during his term of office. (Prior code § 2-5 (part))

2.08.050 Chairman and vice-chairman—Rules and regulations.

The city plan commission members shall select from among their number a chairman and a

vice-chairman, and they shall adopt rules and regulations for the government of their own proceedings, and to carry out the purposes for which such commission is created, not inconsistent with the Charter and ordinances of the city. (Prior code § 2-5 (part))

2.08.060 Duties—Generally.

It shall be the duty of the city plan commission to formulate general plans and designs to promote the welfare, beauty and comfort of the city, to improve and develop means of transportation, ornamentation, drainage, sewerage and all other means of municipal improvement, and the commission shall, from time to time, submit to the city council, reports, maps and plans for such purposes, and it shall be the special duty of the city plan commission to consider, formulate and recommend plans for the elimination, in so far as may be practicable, of all grade crossings for all railways within the city, whether by removal of tracks or by the elevation or depression thereof. (Prior code § 2-6)

2.08.070 Submission of plans for advice and consultation—Public building erection, location and construction plans.

The city will not locate, erect or construct any building, memorial, viaduct, park or work of art of any character, until the plan or proposal therefor shall have been submitted by the city council to the city plan commission for its advice and consultation. (Prior code § 2-7)

2.08.080 Submission of plans for advice and consultation—Street or sewer system, park or parking strip alteration plans.

Whenever it is proposed to make any general alteration in the street system of the city or any portion thereof, or to open, close, widen or extend any street in the city, or in the territory adjacent thereto, or to permit the construction of any streetcar tracks thereon, or to remove any streetcar tracks therefrom, such proposal, before it is acted upon, shall be referred to the city plan commission for advice and consultation. In like manner, any plan for any general change or alteration relating to public parks or parking strips, and to lighting, beautification or ornamentation of any of the streets of the city, or any general plan affecting the drainage or sewer systems of the city, or general change in the grades of public streets, shall be referred to the city plan commission for advice and consultation. (Prior code § 2-8)

2.08.090 Submission of plans for advice and consultation—Recommendations and reports to council.

Whenever any plan, proposal or ordinance relating to matters coming within the duties or jurisdiction of the city plan commission, as herein set forth or hereafter adopted, shall have been referred to the city plan commission for consultation or advice, the city plan commission shall return the same to the city council with its report and recommendation thereon in writing, within thirty days after the same shall have been referred to the city plan commission, unless the city council shall, in referring same, direct that a longer or shorter period shall be allowed for such report, but upon request or recommendation of the city plan commission, the time for the making of such report and recommendation may be extended within the discretion of the city council. (Prior code § 2-9)

2.08.100 Submission of plans for advice and consultation—Plans referred by city council—Action thereon by city council.

When any plan, proposal or ordinance shall have been referred by the city council to the city plan commission, the city council shall not take action thereon until the expiration of the time allowed for the report and recommendation of the commission. (Prior code § 2-10)

2.08.110 City planning—Duty to keep informed on, study and recommend improvements.

It shall be the duty of the city plan commission to keep itself informed as to the progress of city planning in this and other countries, and to make studies and recommendations for the improvement of the sanitation, recreation and general welfare of the public, and to improve traffic, transportation and the general convenience of the public, and the economic development of the city, and it shall submit to the city council, from time to time, plans, reports and recommendations concerning the development of facilities for public recreation, the development and improvement of public parks, boulevards, highways and other grounds, the improvement of the river front and the extension and opening of streets and highways. (Prior code § 2-11)

2.08.120 Zoning plan formulation and submission.

It shall be the duty of the city plan commission to formulate and submit to the city council, plans for zoning and for regulating the location of business houses, industrial plants and residential sections. (Prior code § 2-12)

2.08.130 Housing condition reports and recommendations.

It shall be the duty of the city plan commission to formulate and submit to the city council, reports, plans and recommendations to regulate the height, design and location as to property lines, within the city or adjacent thereto, and to formulate and submit to the city council recommendations to prevent or abolish unsanitary, unhealthful or unwholesome housing conditions. (Prior code § 2-13)

2.08.140 Water supply study, investigation and reports.

The city plan commission shall study, investigate and report upon plans for the extension of the water supply for the city, and upon new sources of supply. (Prior code § 2-14)

2.08.150 Annual reports to council.

On or before August fifteenth of each year, the city plan commission shall make a written report to the mayor and city council of the work of the commission during the preceding year. Such reports shall summarize all recommendations made by the commission to the city council during the year, and all reference by the city council to the commission of matters for investigation, report or advice, together with the action of the city council, if any, taken thereon. Such report shall contain the general program of improvements for the city as shall be recommended by the commission, and may contain estimates of cost and recommendations as to the means of defraying the same. (Prior code § 2-15)

Chapter 2.10

CITY DEVELOPMENT DEPARTMENT*

Sections:

2.10.010 Creation and purpose of the city development department.

2.10.020 Staffing of the city development department.

2.10.010 Creation and purpose of the city development department.

A. There is established in the City of El Paso, the city development department, which shall generally provide for the planning and regulatory functions relating to private land development, construction and building maintenance, economic development and redevelopment of the City of El Paso. There shall be such divisions within the department as established by the city manager for budgetary and operational purposes to include but not be limited to: the planning division, the building permits and inspection division, and the economic development division.

B. The primary function of the planning division shall be handling the duties and responsibilities for all matters relating to planning, subdivisions, smart code, zoning in the city and all related functions regarding the development and use of property as assigned by the city manager and his designees, to include but not be limited to all duties and responsibilities assigned and set forth in the El Paso City Code for the department, the planning division, and the planning official as designated by the city manager.

C. The primary function of the building permits and inspection division shall be to perform regulatory duties relating to construction and building maintenance related matters, and to provide oversight and support relating to the private land development needs of the city.

D. The primary function of the economic development division shall be to assist with job creation in the community through recruitment, retention, expansion and entrepreneurship; and to administer economic development incentive programs and to manage redevelopments efforts citywide.

(Ord. No. 17805, § 2, 6-5-2012, eff. 6-11-2012)

2.10.020 Staffing of the city development department.

A. The department shall be staffed by a department director and such other appropriate positions as are authorized by the council.

B. The department director shall be responsible for the performance of duties as assigned by the ordinances of the city and as determined and directed by the city manager, including but not limited to the duties of the planning official and the building official, provided however, that the city manager may reassign duties to other departments and staff, as he deems appropriate.

(Ord. No. 17805, § 3, 6-5-2012, eff. 6-11-2012)

***Editor's note—**Ord. No. 17805, §§ 1—3, adopted June 5, 2012, effective June 11, 2012, amended chapter 2.10 in its entirety to read as herein set out. Former chapter 2.10, §§ 2.10.010—2.10.030, pertained to planning and economic development department, and derived from Ord. No. 17384, §§ 2, 3, 8-24-2010, eff. 9-1-2010.

Chapter 2.12

COMMUNITY RELATIONS COMMISSION

Sections:

2.12.010 **Established—Membership—Terms—Vacancies.**

2.12.020 **Officers—Term.**

2.12.030 **Quorum—Final actions.**

2.12.040 **Meetings.**

2.12.050 **Rules and procedures.**

2.12.060 **Director—Other personnel.**

2.12.070 **Offices.**

2.12.080 **Duties.**

2.12.090 **Complaints—Receipt and investigation.**

2.12.010 Established—Membership—Terms—Vacancies.

A. There is established for the city a community relations commission consisting of eleven members who shall reside in the city. The commission members shall be appointed by the city council upon recommendation of the mayor and shall serve without compensation. The term of office of the first eleven members of the commission shall be as follows:

1. Five members shall be appointed for a term of one year expiring in 1972;

2. Six members shall be appointed for a term of two years expiring in 1973.

B. After initial terms all appointments made to the commission shall be for terms of two years. All vacancies on the commission shall be filled for the unexpired term only.

C. Members shall be appointed by the city council who are representative of the several social, economic, religious, cultural, ethnic, racial and neighborhood groups which comprise the population of the city at the time of their appointment. (Prior code § 7A-1)

2.12.020 Officers—Term.

The officers of the commission shall be a chairman and vice-chairman. They shall be elected for one-year terms only. The chairman shall preside over all of the meetings of the commission. The vice-chairman shall preside in the absence of the chairman. (Prior code § 7A-2(a))

2.12.030 Quorum—Final actions.

A quorum shall consist of six members of the commission. No final action shall be taken on any matter except pursuant to the majority vote of the members present. (Prior code § 7A-2(b))

2.12.040 Meetings.

Meetings of the commission may be called by the chairman; provided, that notice is given to each member at least forty-eight hours prior to the time thereof. (Prior code § 7A-2(c))

2.12.050 Rules and procedures.

A. Any motion by a member shall require a second. After a motion has been made and duly seconded, discussion of the motion may be had for a reasonable time. Discussion by members shall terminate whenever a member shall call for a vote upon the question or whenever the chairman shall so rule.

B. Whenever any question of procedure may be raised at a commission meeting, the chairman shall rule thereon. A member may move to overrule the chairman's decision, which may be done only by a majority vote of the members present.

C. Voting on matters may be by voice vote; provided, that a role call vote shall be taken upon demand of any member.

D. Any question of order or procedure not covered by these rules shall be decided according to Robert's Rules of Order insofar as same may be applicable. (Prior code § 7A-2(d))

2.12.060 Director—Other personnel.

The community relations commission shall be assisted by a director and such other personnel recommended by the commission as may be determined by the city council to be necessary in the operations of the commission. (Prior code § 7A-3)

2.12.070 Offices.

To facilitate the commission in the performance of its duties hereunder, adequate office space shall be provided as shall be determined by the city council. Such offices shall be open and available to the public at such times as may be determined by the commission. (Prior code § 7A-4)

2.12.080 Duties.

It shall be the duty of the commission to study problems of the relationships of the various races, colors, creeds and nationalities within the city and to advise and cooperate with the mayor, the city council, city department heads, and other city agencies, boards and officials with relation to such problems. The commission shall further make recommendations to the mayor and city council for the betterment of intergroup relationships within the community. The commission shall serve in an advisory rather than in an administrative capacity in performing these duties. The commission is further authorized to:

A. Devise and recommend to the mayor and city council ways and means of discouraging and combatting prejudice, intolerance and bigotry in all groups and in their relations with one another;

B. Discover all practices and policies calculated to create conflicts and tensions and recommend ways and means for their elimination;

C. Report and recommend means of eliminating any unfair or unjust discrimination against any person or groups which would be deemed detrimental to the best interests of the community;

D. Perform such other duties relating to human relationships as the mayor and city council see fit to request. (Prior code § 7A-5)

2.12.090 Complaints—Receipt and investigation.

The commission is designated as the agency to receive and investigate:

A. Complaints alleging discrimination in places of public accommodation because of race, color or religion as prohibited by Ordinance No. 2698 and codified as Sections 10.16.010 through 10.16.050 of this Code. In complaints arising out of alleged violations of Ordinance No. 2698 the commission shall endeavor by means of persuasion, education and conciliation to eliminate the alleged discriminatory practices. In the event the commission fails in its conciliation efforts, it shall forward a record of its proceedings, findings and recommendations to the city council. The actions of the commission under this subsection are to be in addition to the terms and provisions contained in Ordinance No. 2698 as previously passed. Nothing herein shall be taken to require a person aggrieved under Ordinance No. 2698 codified as Sections 10.16.010 through 10.16.050, to file any complaint with the commission before initiating legal action as authorized by Ordinance No. 2698. (Prior code § 7A-6)

Chapter 2.16

ZONING BOARD OF ADJUSTMENT

Sections:

2.16.010 Appointment and terms.

2.16.020 Powers.

2.16.030 Variances.

2.16.040 Appeals.

2.16.050 Special exceptions.

2.16.060 Administration.

2.16.010 Appointment and terms.

A. Appointment and Terms. There shall be a zoning board of adjustment consisting of nine members and nine alternates. The nine members will be appointed by the mayor and city council; the nine alternates will be appointed by the mayor and the city council. The alternate members shall sit in the absence of regular members when requested to do so by the chair of the board. The first alternate selected to replace an absent regular member shall be the alternate nominated by the same city council representative, or the mayor, who nominated the absent regular member. If both the member and alternate nominated by that city council representative or the mayor are absent, any other alternate may be selected. All cases before the board shall be heard and decided by at least seven members.

B. Term of Office. The term of office for members and alternates shall be staggered. Terms of office shall be two years. (Ord. 16888 § 2 (part), 2008)

2.16.020 Powers.

A. The board shall have the powers granted by, and be controlled by, Texas Local Government Code, Chapter 211.

B. The concurring vote of seven members of the board shall be necessary to reverse any order, requirement, decision or determination of any administrative official, or to decide in favor of the applicant on any matter upon which it is required to pass under Title 2, Title 20 of this Code, or to effect any variation in requirements of Title 20 or as specified in Title 21.

C. Where, as part of its power to issue permits, the board imposes conditions, the permits are valid only when all conditions are met.

D. The board is empowered and encouraged to recommend to the city council any changes to the special exceptions or Title 20 which it believes are necessary or useful to the welfare of the community. (Ord. 16888 § 2 (part), 2008)
(Ord. No. 17667, § 1, 11-1-2011)

2.16.030 Variances.

The board of adjustment may authorize in specific cases a variance from the terms of the zoning ordinance (Title 20) or as specified in (Title 21) SmartCode if the variance is not contrary to the public interest and, due to special conditions, a literal enforcement of the ordinance would result in unnecessary hardship, and so that the spirit of the ordinance is observed and substantial justice is done. (Ord. 16888 § 2 (part), 2008)
(Ord. No. 17667, § 2, 11-1-2011)

2.16.040 Appeals.

A. The board is empowered to hear and decide appeals where it is alleged there is error in any order, requirement, decision or determination made by an administrative official in the enforcement of Title 20. In exercising these powers the board may, in conformity with the state act and this chapter, reverse or affirm, wholly or partly, or may modify the order, requirement, decision or determination appealed from and may make such order, requirement, decision or determination as ought to be made, and to that end shall have all the powers of the officer from whom the appeal is taken.

B. The following persons may appeal to the board a decision made by an administrative official that is not related to a specific application, address, or project:

1. A person aggrieved by a decision; or

2. Any officer or department of the city affected by the decision.

C. The following persons may appeal to the board a decision made by an administrative official that is related to a specific application, address, or project:

1. A person who filed the application that is the subject of the decision;

2. A person who is the owner, or representative of the owner, of the property that is the subject of the decision;

3. A person who is aggrieved by the decision and is the owner of real property within two hundred feet of the property that is the subject of the decision; or

4. Any officer or department of the city that is affected by the decision.

D. A person allowed to appeal to the board under this section must do the following in order to appeal a decision to the board:

1. The appellant must file with the board and the official from whom the appeal is taken a notice of appeal specifying the grounds for the appeal.

2. The appeal must be filed not later than the 20th day after the decision is made.

E. The board shall decide the appeal at the next meeting for which notice can be provided and not later than the 60th day after the date the appeal is filed. (Ord. 16888 § 2 (part), 2008)
(Ord. No. 18970, § 1, 9-3-2019)

2.16.050 Special exceptions.

The zoning board of adjustment, in specific cases, may, after notice and a public hearing, make special exceptions to the zoning code only as provided in Titles 2 and 20 of this Code. More than one special exception may be made for a lot so long as the total of the exceptions granted do not exceed the maximum exception which could have been obtained if all the requests for exceptions were combined into one request. The board shall not grant a special exception unless it makes, and records in its minutes, specific findings that:

1. The exceptions will be in harmony with the spirit and purposes of Titles 2 and 20, including the preservation of the essential character of the district in which the property is located;

2. The public convenience and welfare will be substantially served;

3. The use of neighboring property will not be substantially injured; and

4. Include any conditions and safeguards which the board deems appropriate, such as, but not limited to, site arrangement, landscaping and hours of operation.

The board may authorize the following special exceptions:

A. The special exceptions identified in this chapter and in the district regulations established in Title 20 of this Code.

B. Two or More Nonconforming Lots. Permit the modification of setback requirements as the board deems necessary to secure an appropriate development of a lot; provided, however, that:

1. The lot is in a legally recorded and developed subdivision of at least ten years;

2. There are two or more lots that do not conform to Title 20 located within the same block on the same side of the street or within the block directly across and abutting the street;

3. The modifications are in the same nature as the existing nonconforming lots and do not permit construction less conforming than the least conforming of the nonconforming lots; and

4. If the subject lot is located at the intersection of two streets (a corner lot), then nonconforming lots within the same block on the same side of either intersecting street or directly across and abutting either intersecting street, but not lots located diagonally from the subject lot, may be used in determining the nonconforming lot restrictions of this special exception.

C. Rear yard setback, single-family residence. Permit an extension of a single-family residential structure into the required rear yard setback, which shall be measured to the rear property line; provided, however, that:

1. The residence has been in existence with a valid certificate of occupancy for one continuous year;

2. The maximum square footage allowed shall not exceed the result of multiplying one-third of the average width of the lot by three-fifths of the required rear yard setback;

3. A minimum ten-foot rear yard setback shall be required;

4. The minimum side and side street yard setbacks shall not be reduced; and

5. Unless otherwise provided in this section, all remaining areas of the required rear yard shall be permanent open space.

D. Rear yard setback, duplex. Permit an extension of a duplex residential structure into the required rear yard setback which shall be measured to the rear property line; provided, however, that:

1. The duplex has been in existence with a valid certificate of occupancy for one continuous year;

2. The maximum square footage allowed to each unit of the duplex shall not exceed the result of multiplying one-sixth of the average width of the lot by three-fifths of the required rear yard setback; except that, subject to the approval of all owners, the total of all extensions that could be granted to each unit may be combined and granted to one unit provided that the total of all extensions granted for both units of the duplex shall not exceed the result of multiplying one-third the average lot width by three-fifths of the required rear yard setback;

3. A minimum ten-foot rear yard setback shall be required;

4. The minimum side and side street yard setbacks shall not be reduced;

5. The total floor area of all detached accessory structure(s) existing or later constructed on the site shall not exceed one hundred square feet per unit;

6. The extension shall not permit the creation of an additional dwelling unit; and,

7. Unless otherwise provided in this section, all remaining areas of the required rear yard shall be permanent open space.

E. Yard Requirements for Public Schools. Modify the yard requirement for public schools where the following conditions are met:

1. The applicant is a governmental body to whom the Legislature has delegated the Constitutional duty to "establish ... an efficient system of public free schools" and has conferred upon its trustees "exclusive power to manage and govern the public free schools of the district"; and

2. The proposed modification is for one or more of the following purposes:

a. To construct, remodel, revitalize, upgrade or add to existing school facilities in order to preserve a school campus in an existing neighborhood,

b. To make the best utilization of available school campus land for the academic and physical educational needs of students,

c. To conform with existing structures on the school campus,

d. To prevent or reduce the need for portable buildings on the school campus,

e. To prevent or reduce the need to transport students out of their neighborhood school due to the lack of sufficient facilities,

f. To avoid or reduce the need for the school district to condemn adjacent properties,

g. In all of the above cases, before granting a special exception, the board shall:

i. Obtain written verification from authorized representatives of the school district that the above required condition or conditions are met and that the granting of the special exception will not be detrimental to the health, safety or welfare of the students and personnel of the school. This verification is presumed to be valid as to the students and personnel, and

ii. Find that the granting of the special exception is not detrimental to the public health, safety or welfare of the general public, particularly the neighborhood in the vicinity of the school.

F. Side street yard setback. Modify district side street yard requirements where the following conditions are met:

1. The proposed modification does not exceed fifty percent of the required side street yard setback requirement;

2. The minimum front and rear yard setbacks shall not be reduced; and

3. The zoning board of adjustment has received the written approval, based on traffic safety considerations, of the traffic engineer.

G. Builder Error. Permit the encroachment of the principal building or structure into the required yard setbacks in all districts, caused by an error in construction; provided, however, that:

1. The permitted encroachment into any front yard setback shall not exceed ten percent of the required setback, or one foot whichever is greater;

2. The permitted encroachment into any side yard or side street yard setback shall not exceed ten percent of the required setback or one foot whichever is greater;

3. The permitted encroachment into any rear yard setback shall not exceed fifteen percent of the required setback or one foot whichever is greater;

4. The owner shall demonstrate through testimony or documentation that the error causing the encroachment was inadvertent and not intentional; and

5. The number of properties requesting encroachment permission under this section which involve the same builder, contractor, or owner shall not exceed three in any twelve-month period.

H. Lot size. Permit the construction of a single-family residence in a residential (R) district on a lot that does not meet the required minimum lot width, minimum lot depth, or minimum lot area; provided, however, that:

1. The lot is in a legally recorded and developed subdivision of at least ten years;

2. A minimum of one of the required amounts, lot width, lot depth or lot area, meets the required minimum amount;

3. The lot width, lot depth or lot area amounts which do not meet the required minimum amounts are not less than ninety percent of the respective required minimum amount;

4. The residential structure conforms to the yard setbacks of the zone in which it is located; and

5. The maximum number of lots for which this exception may be granted in any subdivision shall be five percent of the total number of lots in the subdivision or one lot, whichever is greater.

I. Authorize the reduction of off-street parking requirements; provided, however, that:

1. The owner shall demonstrate through testimony or documentation that the required number of off-street parking spaces cannot be reasonably accommodated on the property involved;

2. The zoning board of adjustment has received the written approval of the city traffic engineer who shall review the request to determine the impact on the surrounding properties. The city traffic engineer may request a parking study in order to determine the impact on the surrounding properties; and

3. The reduction authorized shall not modify the number of required off-street parking spaces by more than fifteen percent.

J. Carport over a driveway. Permit the encroachment into the required front yard setback for a lot in a residential (R) district beyond other allowed modifications for a carport covering a driveway; provided, however, that:

1. The residence has been in existence with a valid certificate of occupancy for one continuous year;

2. The zoning board of adjustment has received the written approval of the structural design from the building official;

3. The carport shall resemble the main residential structure in scale and character and shall be open on three sides.

4. The area of the carport shall not exceed one-fifth of the first-floor area under roof of the dwelling, with the first-floor area of the dwelling defined as the sum of the gross horizontal area,

exclusive of garages, atriums, stairwells, and open porches, measured from the exterior faces of the exterior walls; and, shall be measured as the area covered by the carport roof, to include overhangs;

5. Elevation drawings of the proposed structure shall be submitted;

6. For a duplex, the total of all extensions for either unit of the duplex shall not exceed two-thirds of the average width of that unit;

7. There is no other reasonable alternative to provide a carport in the front yard of the subject property without exceeding the encroachments allowed in Title 20 of this Code; and

8. Unless otherwise provided in this chapter, all remaining areas of the required front yard shall be permanent open space.

K. In existence fifteen years or more. Permit the encroachment into the required yard setbacks for structures; provided, however, that the applicant can prove the following conditions:

1. The encroachment into the required yard setback has been in existence for more than fifteen years;

2. Neither the applicant nor current property owner is responsible for the construction of the encroachment;

3. Neither the applicant nor the current property owner owned the property at the time the encroaching structure was constructed or built;

4. The encroachment, if into the required front yard setback, does not exceed fifty percent of the required front yard setback; and

5. The encroachment does not violate any other provision of the El Paso City Code.

L. Front yard setback. Permit an extension of a single-family residential structure into the required front yard setback, which shall be measured to the property line; provided, however, that:

1. The residential structure has been in existence with a valid certificate of occupancy for one continuous year;

2. The total length of all extensions granted shall not project into the required front yard setback a depth in excess of ten feet;

3. The total width of all extensions granted shall not exceed one-third of the average width of the site;

4. The minimum side and side street yard setbacks shall not be reduced;

5. A minimum of a ten-foot front setback from the property line shall be maintained;

6. If the proposed modification is for an enclosed garage, a minimum twenty-foot driveway shall be required; and

7. Unless otherwise provided in this section, all remaining areas of the required front yard shall be permanent open space. (Ord. 16888 § 2(part), 2008)

(Ord. No. 17288, §§ 2—8, 3-16-2010; Ord. No. 17398, § 1, 8-24-2010, eff. 9-1-2010; Ord. No. 17666, §§ 2—9, 11-1-2011; Ord. No. 18025, § 1, 6-4-2013; Ord. No. 18970, § 2, 9-3-2019)

2.16.060 Administration.

A. All applications to the board will be in writing on forms provided by the planning official and with documents as required and shall be accompanied by the fee as set by city council to help defray the cost of publication, the giving of notice, and general expense in connection with the application, except that no fee shall be required for a variance application that is related to a proposed SmartCode development. Before acceptance, all applications submitted shall be complete in all details.

B. The owners of property within three hundred feet of the subject property shall be provided written notice of the appeal or application for a special exception or variance ten days prior to the hearing of the board.

C. The board authorization is for twelve months unless otherwise directed by the board at the time the authorization is approved.

D. Extension of the time to apply for a building permit may be requested from the board during the one-year period. Extension of time may not be requested when demolition of non-permitted structure(s) is required. The request for an extension shall be acted upon by the board at the

regular meeting, but no notice and hearing shall be required. If a board authorization expires, a new application accompanied by a new fee is required, except that no fee shall be required for a variance application that is related to a proposed SmartCode development.

E. Applications for special exceptions may be granted, denied or granted with conditions by the board.

F. Reapplication. The board will not consider an appeal or application that is the same or very similar to one that has been denied, for a period of twelve months unless the board finds that a substantial change in conditions has occurred.

G. Revocation. The board of adjustment shall have authority to revoke a variance or special exception if it finds development and/or operation is not in accordance with the conditions under which a variance or special exception was permitted.

H. Appeals of board decisions. Appeals from the zoning board of adjustment lie directly to the district court. (Ord. 16888 § 2 (part), 2008)
(Ord. No. 17398, § 2, 8-24-2010, eff. 9-1-2010; Ord. No. 17667, § 3, 11-1-2011)

Chapter 2.20

RESERVED*

*__Editor's note__—Ord. No. 019778, § 1, adopted Aug. 19, 2025, repealed ch. 2.20, §§ 2.20.010—2.20.110, which pertained to board of parks and recreation and derived from the prior code, §§ 16-1—16-6; Ord. No. 10872 § 1, adopted 1992; Ord. No. 12557, adopted 1995; Ord. No. 17124, § 1, adopted June 9, 2009; Ord. No. 17395, § 1, adopted Aug. 24, 2010; Ord. No. 17806, § 2, adopted June 5, 2012.

Chapter 2.22

RESERVED*

*__Editor's note__—Ord. No. 019776, § 2, adopted Aug. 19, 2025, repealed ch. 2.22, §§ 2.22.010—2.22.060, which pertained to open space advisory board and derived from Ord. No. 17123, §§ 2, 3, 4, 5, 6, adopted June 9, 2009; Ord. No. 17205, § 2, adopted Sept. 22, 2009; Ord. No. 17352, § 1, adopted July 13, 2010; Ord. No. 17480, §§ 1, 2, 3, adopted Jan. 6, 2011; Ord. No. 17770, §§ 1, 2, adopted April 17, 2012.

Chapter 2.24

HISTORIC LANDMARK COMMISSION

Sections:

2.24.010 Creation, membership and terms.

2.24.015 Members not to hold other public offices.

2.24.020 Duties.

2.24.030 Meetings.

2.24.040 Historic preservation officer.

2.24.010 Creation, membership and terms.

A. There is created a commission to be known as the historic landmark commission, hereinafter referred to as the HLC. The HLC shall consist of nine members who are residents of the City of El Paso. The mayor and each representative shall appoint one member. Members may be removed with or without cause. Members shall serve without compensation.

B. A quorum of the HLC shall consist of a majority of the number of members currently appointed.

C. All members shall have demonstrated special interest, knowledge, and experience in the architectural, archeological, cultural, social, economic, ethnic or political history of El Paso, and shall include two architects. No one business or professional interest shall constitute a majority membership of the HLC. To the extent available in the community, professionals from the disciplines of architecture, engineering, construction, history (such as urban planning, American studies, American civilization, cultural geography, or cultural anthropology), architectural history, urban planning, archeology, or other disciplines related to historic preservation shall be given preference for appointment for any membership positions.

D. To the extent all HLC membership positions cannot be filled pursuant to subsection C of this section, members may include, but shall not be limited to, member representatives from the El Paso Association of Home Builders, El Paso Realtor's Association, the El Paso Preservation Alliance, a neighborhood association serving a historic district, and the El Paso Archeological Society. In addition, any civilian or military staff from Fort Bliss may also serve as members of the HLC.

E. Each member of the HLC shall be appointed for a term of two years, not to exceed two consecutive terms. Members shall elect a chair and a vice-chair from the voting membership and shall promptly fill a vacancy in either office.

F. Appointed members wishing to resign their appointed post shall give at least thirty days written notice to the person who appointed them, with a copy to the city historic preservation office stating the effective resignation date. (Ord. 16369 § 1 (part), 2006)

2.24.015 Members not to hold other public offices.

No member of the HLC, shall hold any other public office of honor, trust or profit in the government of the city or county during his term of office. (Ord. 16369 § 1 (part), 2006)

2.24.020 Duties.

A. The HLC shall perform all duties and functions as may be designated to it in the El Paso City Code.

B. The HLC shall thoroughly familiarize itself with buildings, interiors, structures, sites, districts, areas and lands within the city that may be eligible for designation as historic landmarks.

1. Initiate designations of local H-overlay properties and historic districts.

2. Create and recommend to city council for approval, guidelines for designated historic buildings, interiors accessible to the general public, structures, sites and districts to be used in determining the approval or denial of certificates of appropriateness and certificates of demolition or removal. The guidelines may address any alterations on historic landmarks in order to protect significant architectural, historical, archeological or cultural elements of the district by describing the architectural regulations for the exterior of building, in addition to existing zoning classification, height

and area limitations, and design regulations for those interiors specifically designated as historic interiors, to include the following factors when reviewing applications:

i. Acceptable materials for construction;

ii. Appropriate architectural character, scale and detail;

iii. Acceptable appurtenances to new and existing structures;

iv. Acceptable textures and ornamentation;

v. Acceptable landscape architectural features.

3. Nominate landmarks, H-overlay properties, and historic districts to the State Historic Preservation Officer (SHPO) for consideration to the National Register of Historic Places or to the Texas Antiquities Landmarks, and to review and comment on any national register nominations submitted to the HLC upon request of the mayor and city council.

C. Prepare a preservation plan, which shall be presented to the city plan commission for consideration and recommendation to the city council as a supplement to the plan for El Paso. The HLC shall review the preservation plan and the state of preservation of designated historic landmarks annually, include in the HLC minutes a report of such review, and take appropriate action on any amendments to the plan deemed necessary. Prior to presenting the preservation plan or any amendment thereto, to the plan commission, the HLC shall hold a public hearing on the preservation plan or the amendment thereto.

D. The HLC may perform the following functions including but not limited to:

1. Provide information and counseling to owners of designated historic landmarks;

2. The HLC shall rule on requested exceptions to the guidelines based upon the overall visual effects of the proposed exceptions;

3. Conduct surveys and maintain an inventory of historic, architectural, archeological and cultural landmarks located with the city; and

4. Approve work completed on a historic property, regardless of designation, which adheres to the administrative review design guidelines as approved by city council.

E. Assist the historic preservation office with supporting and promoting the historic preservation program, specifically including but not limited to the following:

1. Serving as the advocacy arm of the program to raise interest and awareness, highlight program successes, retain and expand programs, and promote new initiatives that are an essential part of a successful historic preservation program;

2. Identify funding mechanisms, public and private, that helps to sustain an effective and efficient program;

3. Recommend strategic conservation initiatives and investments that help to promote and sustain local preservation efforts;

4. Actively work to develop an institutional framework that encourages incentives and controls that:

a. Reflect local urban design concerns,

b. Planning processes that support urban design and historic preservation activities,

c. Methods for working with the private sector on its development proposals, and

d. Methods for conducting formal and informal public meetings so as to get information and feedback.

5. Work with community leaders and various agencies to broaden knowledge on the local development character to maintain an existing and new historic focus on landmarks within the fabric of the community;

6. Create opportunities to preserve and expand the community historic preservation program; and

7. Evaluate other community programs frequently to guide and serve as a model for growing the local program, and particularly to develop a funding plan necessary for execution of new initiatives. (Ord. 16369 § 1 (part), 2006)

2.24.030 Meetings.

A. The HLC shall meet at a regularly scheduled time when cases have been scheduled for discussion and action by the HLC, or on a schedule as determined by the HLC, with advance notice posted in accordance with the Texas Open Meetings Law. All meetings of the HLC shall be open to the public.

B. The HLC shall keep minutes of all its proceedings showing the vote of each member upon each question, or if absent or abstained from vote, indicating such fact. All records of the HLC shall be kept by the recording secretary of the HLC.

C. Meetings may be called upon request of the chair, or upon written request of a majority of currently appointed members. The HLC shall adopt rules and regulations for the government of their own proceedings, and to carry out the purposes for which such commission is created, not inconsistent with the Charter and ordinances of the city.

D. The historic preservation office shall designate an official who will act as secretary of the HLC and shall attend and keep the minutes of all meetings.

E. No member of the HLC shall vote or participate as a member in any matter that materially affects the financial interest of that member pursuant to the ethics ordinance of the El Paso City Code. Such member shall give notice and provide reasons for abstention from voting prior to the taking of a vote.

F. The HLC may appoint subcommittees to review applications submitted as well as issues relevant to the full body. Such subcommittees may meet as directed by the HLC. If directed by the HLC, subcommittees may perform, but shall not be limited to, the following functions:

1. Review applications and plans prior to the meeting of the HLC;

2. Prepare recommendations on each application to be presented to the HLC at their regularly scheduled meeting;

3. Make suggestions and recommendations, which may include sketches and general drawings to assist applicants; and

4. Make recommendations to the full body of the HLC on issues relevant to archeology, design, aesthetics, and any other issue within the jurisdiction of the HLC. (Ord. 16369 § 1 (part), 2006)

2.24.040 Historic preservation officer.

A. The city manager shall assign the city department(s) responsible for managing the historic preservation office of the city, and shall designate an official who shall serve as the historic preservation officer. The historic preservation officer, along with any other designated staff, shall serve as the official liaison to the HLC and shall be responsible for managing all activities of the historic preservation office.

B. The historic preservation officer shall be the local preservation officer with duties including, but not limited to:

1. Serve as the local preservation contact and/or liaison for the City of El Paso to the community, Texas Historical Commission, and the National Park Service;

2. Accept and process cases before the HLC;

3. Coordinate research efforts as requested by the HLC;

4. Actively seek grants to assist the historic preservation program;

5. Accept and process applications for the tax incentives program for historic properties;

6. Maintain and update the inventory of historic properties;

7. Maintain and update the database of cases processed before the HLC;

8. Act upon administrative review applications as specified in the administrative review design guidelines; and

9. Provide information and training, conduct workshops for the public related to the historic preservation program. (Ord. 16369 § 1 (part), 2006)

Chapter 2.28

RESERVED*

Ord. No. 17201, § 1, adopted September 22, 2009, repealed chapter 2.28, which pertained to El Paso International Airport Board and derived from Ord. 6626, §§ 2—8, 1979.

Chapter 2.30

CONSTRUCTION APPEALS

Sections:

2.30.010 Purpose.

2.30.020. Appointment of appeals officer.

2.30.030 Reserved.

2.30.040 Reserved.

2.30.050 Reserved.

2.30.060 Powers.

2.30.070 Appeals.

2.30.080 Procedures.

2.30.090 Reserved.

2.30.010 Purpose.

The purpose of this chapter is to provide for reasonable due process of law through the appeal of orders, decisions or determinations made by city officials relative to the application and interpretations of the requirements in the codes specified in section 2.30.060 A. for specific projects, without further appeal to the city council. (Ord. 16492 § 2 (part), 2006: Ord. 15962 § 1 (part), 2004: Ord. 15159 § 1 (part), 2002)
(Ord. No. 17488, § 1, 1-18-2011)

2.30.020. Appointment of appeals officer.

The city manager or designee shall be the designated appeals officer on all construction appeals. (Ord. 16492 § 2 (part), 2006: Ord. 15962 § 1 (part), 2004: Ord. 15159 § 1 (part), 2002)
(Ord. No. 019756, § 2, 7-22-2025)

2.30.030 Reserved.

Editor's note—Ord. No. 019756, § 3, 7-22-2025, repealed § 2.30.030, which pertained to membership and terms and derived from Ord. 16492 § 2 (part), adopted 2006; Ord. 15962 § 1 (part), adopted 2004; Ord. 15159 § 1 (part), adopted 2002.

2.30.040 Reserved.

Editor's note—Ord. No. 019756, § 4, 7-22-2025, repealed § 2.30.040, which pertained to quorum and voting and derived from Ord. 16492 § 2 (part), adopted 2006; Ord. 15962 § 1 (part), adopted 2004; Ord. 15159 § 1 (part), adopted 2002.

2.30.050 Reserved.

Editor's note—Ord. No. 019756, § 5, 7-22-2025, repealed § 2.30.050, which pertained to secretary of the board and derived from Ord. 16492 § 2 (part), adopted 2006; Ord. 15962 § 1 (part), adopted 2004; Ord. 15159 § 1 (part), adopted 2002; and Ord. No. 17398, § 3, adopted Aug. 2010.

2.30.060 Powers.

A. The appeals officer is authorized to hear appeals from decisions issued by:

1. The building official in connection with administrative or enforcement of Chapter 18.02 (Building and Construction Administrative Code), Chapter 18.08 (Building Code), Chapter 18.10 (Residential Code), Chapter 18.12 (Mechanical Code), Chapter 18.16 (Electrical Code), Chapter 18.18 (Outdoor Lighting Code), Chapter 18.20 (Plumbing Code), Chapter 18.24 (Gas Code), Chapter 18.28 (Existing Building Code), and Chapter 18.46 (Landscaping), Chapter 5.32 (Public Swimming Pool Licenses), Chapter 5.90 (Security Alarm Systems) and Chapter 5.108 (Servicing Cesspools, Grease Traps and Septic Tanks) or such chapters that may succeed these chapters.

2. The fire official in connection with administration of Chapter 9.52 (Fire Protection Code);

3. The stormwater administrator in connection with administration or enforcement of Chapter 15.20 (Stormwater Management);

4. The floodplain administrator in connection with the administration of Chapter 18.60 (Flood Damage Prevention).

5. The city engineer regarding the issuance, denial, revocation or suspension of a permit issued under Chapter 18.44 (Grading), Chapter 13.08 (Excavation) or Section 13.04.010 (Sidewalk and Curb Permit).

B. An application for appeal shall be based on a claim that the intent of an identified code or the rules legally adopted hereunder have been incorrectly interpreted, the provisions of the code do not fully apply, or an equivalent method of protection or safety is proposed. The appeals officer is authorized to impose reasonable conditions or safeguards as necessary to ensure that the purpose and intent of this Code are satisfied. The

appeals officer consideration of an appeal pursuant to this section shall not be construed as a waiver of any other requirement of the code. The power of the appeals officer to interpret, determine applicability and equivalent measures under the code shall not be interpreted to allow the appeals officer to modify any fees required to be paid in accordance with the code.

C. The appeals officer may:

1. Make recommendations to the building official, the floodplain administrator, the stormwater administrator, and the fire official with respect to changes in the codes listed in Section 2.30.060 A.1. through 4.;

2. Make recommendations to the building official, the floodplain administrator, the stormwater administrator, and the fire official regarding the appropriateness of materials, methods, or equipment for use in the city; and

3. Recommend standards for safety of life and property, and workmanship for grading, stormwater management, flood prevention, fire prevention and residential and commercial construction in the city. (Ord. 16658 § 1, 2007; Ord. 16492 § 2 (part), 2006: Ord. 16040 § 1, 2005; Ord. 15962 § 1 (part), 2004: Ord. 15159 § 1 (part), 2002) (Ord. No. 17398, § 4, 8-24-2010, 9-1-2010; Ord. No. 17488, § 2, 1-18-2011; Ord. No. 019756, § 6, 7-22-2025)

2.30.070 Appeals.

A. The owner of a property, building, structure or service system, or duly authorized agent of such, may appeal a decision concerning any matter for which the appeals officer is authorized to hear appeals under Section 2.30.060, whenever any one of the following circumstances exists:

1. When the city official rejects or refuses to approve the design or method of construction proposed to be used in the construction or alteration of a building, structure or service system;

2. When the city official rejects the material proposed to be used in the construction or alteration of a building, structure or service system;

3. When the city official refuses to extend a permit when the applicable provision of the code allows an extension of the permit;

4. When the city official refuses to issue a permit or suspends a permit or revokes a permit; or

5. When the city official refuses to issue a license, suspends a license, or revokes a license.

B. Appeal procedures:

1. The appeal shall be filed in writing with the city clerk within thirty consecutive days from the date the appellant receives written notice from the city of the decision being appealed. If the thirty consecutive days ends on a legal holiday or a weekend, then the last time to file the appeal with the city clerk shall be 5:00 p.m. on the next city working day.

2. The appeal shall be signed by the owner of the property that is the subject of the decision being appealed, the applicant for a permit application that was denied or the permittee of a permit that has been suspended, revoked or that was not extended;

3. The established filing fee shall accompany the appeal.

4. The appeal shall specify the action by the city that is being appealed, attach a copy of the decision by the city that is being appealed and specify the reasons why the decision should be reversed.

C. In considering an appeal of a decision of a city official, the appeals officer shall have the same authority to decide the issue as the official making the decision being appealed.

D. The appeals officer is authorized to hear and grant appeals to utilize structures for a limited period of time that do not comply with the provision of an identified technical code. The procedures for appealing for such temporary exceptions are as follows:

1. An application for appeal shall be signed by the owner of the subject property:

2. Applications shall be accompanied by sufficient documentation confirming the validity of the proposed temporary structures, property lines, setbacks and off-street parking;

3. Application shall be accompanied by a plot plan drawn to scale indicating the location of proposed temporary structures, property lines, setbacks and off-street parking; and

4. Application shall be accompanied by drawings or other documentation describing the construction of the proposed temporary facility.

E. In considering an appeal, other than from Chapter 18.60 (Flood Damage Prevention), the appeals officer shall consider the following where appropriate:

1. The sufficiency of technical, architectural, engineering or fire prevention methods presented by the appellant offered in support of the request to interpret, determine applicability and equivalent measures under the applicable code;

2. That special conditions and circumstances exist which are unique to the site, building, structure or service system and are not applicable to others;

3. That the special conditions and circumstances do not result from the action or inaction of the applicant;

4. That granting the appeal requested does not confer on the applicant any special privilege that has been previously denied by the board appeals officer to other similarly situated sites, building structures or service systems;

5. That the appeal will make possible the reasonable use of the site, building, structure or service system; and

6. That granting an appeal will be in harmony with the general intent and purpose of the identified code and will not be detrimental to the public health, safety and welfare

F. In granting an appeal, the appeals officer may prescribe a reasonable time limit within which the action for which the appeal is required shall be commenced or completed or both. In addition, the appeals officer may prescribe reasonable conditions and safeguards in conformity with the intent of the code.

G. In reviewing an appeal under Chapter 18.60 (Flood Damage Prevention), the appeals officer shall follow the procedures as identified in Chapter 18.60.180. (Ord. 16492 § 2 (part), 2006: Ord. 15962 § 1 (part), 2004: Ord. 15159 § 1 (part), 2002) (Ord. No. 17488, § 3, 1-18-2011; Ord. No. 019756, § 7, 7-22-2025)

2.30.080 Procedures.

A. The appeal shall be heard within fifteen calendar days after the date the completed application for appeal is received.

B. The appeals officer shall reach a decision without unreasonable or unnecessary delay. A copy of the decision shall be delivered by certified mail or personal delivery to the applicant. The decision of the appeals officer shall be final and shall not be appealed to the city council but may be appealed to a court of competent jurisdiction. (Ord. 16492 § 2 (part), 2006: Ord. 15962 § 1 (part), 2004: Ord. 15159 § 1 (part), 2002)
(Ord. No. 019756, § 8, 7-22-2025)

2.30.090 Reserved.

Editor's note—Ord. No. 17488, § 4, adopted January 18, 2011, repealed § 2.30.090, which pertained to fees and derived from Ord. 16492 § 2 (part), 2006: Ord. 15962 § 1 (part), 2004: Ord. 15159 § 1 (part), 2002.

Chapter 2.34

EL PASO WATER UTILITIES PUBLIC SERVICE BOARD

Sections:

2.34.010 Members.

2.34.020 Selection committee.

2.34.030 Compliance with Ethics Ordinance.

2.34.010 Members.

The El Paso Water Utilities Public Service Board will now consist of seven members, one of whom must be the mayor of the city as provided for by Texas Government Code Section 1502.070(a)(B).
(Ord. 17167, § 1, 8-11-2009)

2.34.020 Selection committee.

Each vacancy in board membership whether occasioned by expiration of office or otherwise shall be filled by the city council from three persons eligible to serve as board members and presented to city council. A selection committee selected by the city council and comprised of the board and such additional members as appointed by city council shall agree upon and submit to city council the names of such three eligible persons.
(Ord. 17167, § 1, 8-11-2009)

2.34.030 Compliance with Ethics Ordinance.

A. Notwithstanding anything contained in other city ordinances to the contrary, the board is hereby deemed a "board" under the Ethics Ordinance and members of the board are hereby deemed "officers" under the Ethics Ordinance and, as such, are subject to and must comply with the provisions contained therein.

B. The board shall be identified on the list or lists maintained by the city clerk to reflect that the members of the board are subject to the various provisions contained in the Ethics Ordinance and such list or lists shall made available to the public as provided for by the Ethics Ordinance.
(Ord. 17189, §§ 1, 2, 9-8-2009)

Cross reference—Ethics, Ch. 2.92.

Chapter 2.38

BUILDING AND STANDARDS COMMISSION*

Sections:

2.38.010 Purpose.

2.38.015 Definitions.

2.38.020 Appointment.

2.38.030 Membership and terms.

2.38.040 Procedures of the commission.

2.38.050 Quorum.

2.38.060 Hearing procedures.

2.38.070 Powers and orders.

2.38.080 Failure to comply with commission order.

2.38.090 Notice.

2.38.100 Request for continuance.

2.38.110 Request for modification of a commission order.

2.38.120 Request for rehearing.

2.38.130 Liens.

2.38.010 Purpose.

The purpose of this chapter is to provide procedures and powers for the building and standards commission pursuant to Texas Local Government Code Chapter 54, Subchapter C and Chapter 214, Subchapter A.

(Ord. No. 19112, § 1, 10-27-2020)

2.38.015 Definitions.

A. "Commission" means the building and standards commission.

B. "Dangerous structure" means a structure that is:

1. Dilapidated, substandard or unfit for human habitation and a hazard to the public health, safety and welfare;

2. Regardless of its structural condition, unoccupied by its owners, lessees, or other invitees and is unsecured from unauthorized entry to the extent that it could be entered or used by vagrants or other uninvited persons as a place of harborage or could be entered or used by children; or

3. Boarded up, fenced, or otherwise secured in any manner if:

a. The building constitutes a danger to the public even though secured from entry; or

b. The means used to secure the building are inadequate to prevent unauthorized entry or use of the building in the manner described in subsection B.2.

C. "Diligent effort" means that the duty to identify a natural person or legal entity is satisfied when any of the following records have been searched:

1. El Paso County real property records;

2. El Paso County Appraisal District records;

3. Texas Secretary of State records;

4. El Paso County assumed name records;

5. City of El Paso tax records; or

6. City of El Paso utility records.

D. "Director" means the director of the planning and inspection department or his/her designee.

E. "Interested party" means a natural person or legal entity having any legal ownership interest in the real property or sign subject to a hearing under this chapter, including, mortgagee, lienholder or other party with legal right of possession, but does not include any person or legal entity with mineral or easement rights.

F. "Minimum standards for the continued use and occupancy of structures" means those adopted and codified in Chapter 18.50 of the El Paso City Code.

G. "Notification" means the duty to notify an interested party has been satisfied when the notice, order or other documentation has been personally served or mailed, by certified mail, return receipt requested, or first class mail using signature confirmation services. The validity of notification,

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***Editor's note**—Ord. No. 19112, § 1, adopted Oct. 27, 2020, repealed the former Ch. 2.38, §§ 2.38.010—2.38.110, and enacted a new Ch. 2.38 as set out herein. The former Ch. 2.38 pertained to similar subject matter and derived from Ord. No. 17773, § 1, adopted April 17, 2012.

order or other documentation shall not be affected if it is returned by the United States Postal Service as "refused" or "unclaimed," and it shall be deemed as delivered.
(Ord. No. 19112, § 1, 10-27-2020)

2.38.020 Appointment.

A. The commission shall consist of nine regular members appointed by the city council, who shall serve two-year terms. Commissioners are subject to the term limitations outlined in City Code Section 2.04.050. Each city council representative and the mayor shall nominate a member for the commission. Priority for consideration of each nominee in each category shall be based on the date and time the nomination is received by the city clerk for posting on the city council agenda. Vacancies shall be filled by city council appointment in the same manner as the initial appointments were made.

B. Members must be residents of the City of El Paso. Appointments shall be made consistent with the City Charter and this chapter. All members shall serve until their successors are appointed and qualified.

C. The director, the building official, the fire marshal, and the chief of police or their designees shall serve in an advisory capacity to the members of the commission.
(Ord. No. 19112, § 1, 10-27-2020)

2.38.030 Membership and terms.

A. The commission shall consist of:

1. Three members must meet any of the following criteria:

a. A registered architect with experiences in the construction of building and residential structures;

b. A licensed professional engineer with experience in the construction of commercial buildings;

c. A city registered residential or commercial contractor with residential experience in residential or commercial construction of buildings and residential structures.

2. The remaining six members shall be chosen on the basis of the following criteria:

a. Registered architect with experience in the construction of buildings and residential structures;

b. Mortgage loan banker or broker;

c. City registered residential or commercial contractor with experience in residential or commercial construction projects;

d. Licensed real estate broker;

e. Engaged in social or welfare work;

f. Structural engineer with experience in the construction of commercial buildings;

g. Certified public accountant; or

h. Real estate appraiser.

3. All members shall be chosen on the basis of their interest in community affairs and impartiality, fairness, and judicial temperament.

B. The appointment of all members will be for a two-year term, which term shall commence on November 1 of each year, with appointments from districts 2, 3, 4, and 7 and the mayor to begin in odd-numbered years, and districts 1, 5, 6 and 8 to begin in the even-numbered years. On November 1, 2020, all then current terms of the commission expire, and each city council representative shall make appropriate appointment. The first term thereafter for districts with terms beginning on odd numbered years will be for the on year. The first term thereafter for districts with terms beginning on odd numbered years will be for one year, however, all terms thereafter shall be for two years.

C. A commission member may be removed by city council in accordance with City Code Chapter 2.04, for cause on a written charge. Three or more unexcused absences in one year may be considered cause for purposes of removal. A public hearing on said removal must be held by city council if requested by the affected commission member.
(Ord. No. 19112, § 1, 10-27-2020)

2.38.040 Procedures of the commission.

A. The commission may adopt bylaws that are consistent with this chapter and that are ap-

proved by the city attorney. The bylaws shall be submitted to the city clerk and be available to the public upon request. Meetings of the commission will be scheduled on an annual basis at the first meeting of each calendar year, and special meetings may be held at the call of the chair, or in the chair's absence the vice-chair, or an acting chair designated by the chair, or as the commission may determine. All meetings of the commission are open to the public and held in accordance with the Texas Open Meetings Act.

B. The director or designee shall act as secretary to the commission. The secretary does not have a vote and shall not be counted in determining a quorum. The secretary shall cause the minutes of each meeting to be kept and filed with the city clerk. The secretary shall keep all evidence admitted or a description of the evidence in accordance with the duly adopted bylaws.
(Ord. No. 19112, § 1, 10-27-2020)

2.38.050 Quorum.

A. Five members constitute a quorum. Decisions of the commission are made by a concurring majority vote of the members present.

B. The commission shall elect a chair and a vice-chair.

C. A commission member must comply with Chapter 2.92 of the El Paso City Code and Chapter 171 of the Texas Local Government Code. In the event a member recuses himself from hearing a case, the commission shall proceed if a quorum is present without counting the recused member.

D. A commission member shall not, outside of a hearing held by the commission, discuss the merits of a case with any individual concerning any issue that is being heard by the commission.
(Ord. No. 19112, § 1, 10-27-2020)

2.38.060 Hearing procedures.

Chair or vice-chair shall administer oath for all parties to be providing testimony prior to hearing merits of any case.

A. The director will assign a staff member to represent the city at each hearing. The city bears the burden of proving its case by presenting evidence and testimony. The city is entitled to cross-examine any witness and provide rebuttal testimony.

B. Each interested party may represent themselves or may appoint a representative. Each interested party may have only one representative address the commission. Each interested party or his representative is entitled to cross-examine witnesses and present rebuttal evidence and testimony.

C. All persons giving testimony at a hearing must be sworn in by the chair, acting chair, who may administer oaths and compel the attendance of witnesses.

D. Dangerous structure hearings. If a party is advocating for repair, then that party bears the burden of proof to demonstrate the scope of any work that may be required to comply with Chapter 18.50 and the time it will take to reasonably perform the work.

E. Sign removal hearings. If a party is advocating that the sign was lawful when it was erected, then that party bears the burden of proof.

F. After a hearing the decision of the commission is final as to administrative remedies unless a rehearing is granted in compliance with Section 2.38.100.

G. Any owner, lienholder, or mortgagee of record who is aggrieved by a decision of the commission may appeal pursuant to Texas Local Government Code, Section 54.039.

H. Sign removal hearings in which a party is advocating the sign was lawful when erected may be appealed pursuant to Local Government Code, Section 216.014.
(Ord. No. 19112, § 1, 10-27-2020)

2.38.070 Powers and orders.

A. The commission may hear the following cases:

1. Dangerous structure hearings. A hearing in which the director seeks to have a structure deemed dangerous and is seeking an order requiring the owner to take any of the following: vaca-

tion of the structure and relocation of occupants, a reduction of the occupancy load, or the securing, repair, removal or demolition of the structure.

2. Secured structure hearings. A hearing requested after the building official has secured a structure pursuant to the procedures set forth in Chapter 18.42.

3. Appeal hearing. A request by an owner of a vacant building who has had a vacant building registration denied or revoked under Chapter 18.40.

4. Sign removal hearings. If an unpermitted or dangerous sign located in whole or in part on private property remains after the owner has been provided notice under Section 20.18.130 of this Code to remove the sign, then the building official may refer the case to the commission pursuant to Section 20.18.130

B. Orders. All orders of the commission must comply with the applicable state law.

1. Dangerous building hearings. Upon determining that the structure is dangerous the commission may:

a. Order the owner of the structure to reduce the occupancy load, cause the structure to be vacated and the occupants to be relocated, and/or cause the structure to be secured, repaired, removed or demolished;

b. Issue orders or directives to any peace officer of the state, including a sheriff or constable or the chief of police, to enforce and carry out the lawful orders or directives of the commission;

c. Order the accruing of a civil penalty not to exceed one thousand dollars per day, or ten dollars per day for a homestead, for violations of orders issued under this chapter, after the owner has actual notice of the order and takes acts in violation or fails to take actions to comply with the order; and

d. Order the city to reduce the occupancy load, cause the structure to be vacated and the occupants to be relocated, and/or cause the structure to be secured, removed or demolished, after the owner has failed to comply with commission orders within the allotted time.

2. Secured structure hearings.

a. To affirm the action taken by the building official;

b. To affirm the reasonableness of the expenses assessed against the real property;

c. To deem the building was not in violation of Chapter 18.50;

d. To deem that the building was occupied by persons with the right of possession.

3. Vacant building registration denial or revocation appeals.

a. To affirm the decision of the building official; or

b. To grant or reinstate a vacant building registration.

4. Sign removal.

a. Order the building official to cause the sign to be removed. The city shall store the sign for no more than ten days, after which time the city may dispose of the sign and assess the actual storage fees on the owner of the sign; or

b. Order that the sign is not in violation Title 18 of the El Paso City Code.

C. Dangerous building orders shall include the following, as applicable:

1. A statement as to whether the structure was found to be dangerous and if it can be made safe;

2. A clear and concise statement of the action the owner is required to take to comply with the order;

3. A definite period of time, in compliance with Local Government Code 214.001(h), (i), (j), and (k), in which the owners shall comply with the order;

4. A statement that failure to comply may result in the city taking the ordered action and seeking reimbursement from the owner and that the debt, if not satisfied, will become a lien against the real property;

5. A clear and concise statement setting forth the penalties issued by the commission for acting contrary to the order;

6. A statement that the interested parties have a right to appeal to the district court within thirty days as provided in this chapter;

7. A statement that any civil penalty or assessment imposed will accrue interest at a rate often percent a year from the date of the assessment until paid in full.

8. That the notice will be filed in the El Paso County real property records and any person acquiring interest in property after an order has been recorded is subject to the requirements of the order.

(Ord. No. 19112, § 1, 10-27-2020)

2.38.080 Failure to comply with commission order.

A. In addition to any civil penalties in the order, a person commits a misdemeanor offense if he fails to comply with a commission order that has become final.

B. It is a defense to prosecution under subsection A. of this section that the commission order has been appealed to the state district court and the case is pending or the commission order was not upheld on appeal.

C. After the time provided in the order has expired and the commission's order has not been appealed, then the city may take the ordered action after complying with the following:

1. The director shall cause the structure's condition to be assessed, so as to determine whether its condition remains substantially the same or has worsened from its condition at the time of the order, and shall document evidence of its condition in the file before providing notice.

2. Providing notice as described in Section 2.38.090 D.

3. Within the twenty-four hours before the city commences any work, the director shall again cause the structure's condition to be assessed, and document evidence of its condition for his file.

D. In the event that, pursuant to an assessment under this section, the director determines that the condition of the property is not substantially the same or worsened and appears to have been substantially and purposefully improved, the director will either request a rehearing and serve notice to the interested party to appear before the commission to show cause why the city should not cause the structure to be vacated, secured, removed or demolished, or take action to enforce the provisions of this Code and the order of the commission by pursuing all civil and criminal actions, and civil and injunctive remedies available to the city under state law, or by any other remedy or combinations of remedies available at law or equity, including in any court action, the collection of attorney's fees and costs, and maximum interest on liens and judgments as allowed by law.

(Ord. No. 19112, § 1, 10-27-2020)

2.38.090 Notice.

A. A diligent effort, as defined in Section 2.38.015, must be made to identify the owner of any real property or sign that is the subject of a hearing under this chapter.

B. Notification of hearing or rehearing must be provided to all interested parties at least ten days before the hearing and the notice must include:

1. The date, time, and place of the hearing;

2. An identification, which is not required to be a legal description, of the structure and the property on which it is located;

3. A description of the alleged violations of the El Paso City Code;

4. If a dangerous structure hearing, a statement that if any interested party wishes to advocate for repair, they bear the burden of demonstrating that repair is a reasonable option and must submit at or before the hearing proof of the scope of any work that may be required to bring the building into minimum compliance with Chapter 18.50 and the time it will take to reasonably perform the work;

5. A citation to this chapter;

6. If a dangerous structure hearing, that the notice is being filed in the El Paso County real

property records and that the notice binds any party that becomes an interested party subsequent to the day the notice is recorded.

C. Notification of commission order. Within ten days of an issued order the director or designee shall provide notification to each identified interested party and shall file a copy of the order with the city clerk.

D. Notice required: city to perform work.

1. The director or designee shall cause notification to the owners and prominently post the notice at the property five days prior to the date the city intends to complete the work. The notice must include:

a. An identification, which is not required to be a legal description, of the structure and the property on which it is located;

b. An identification of the commission order affecting the property and the actual order or an outline of findings;

c. A statement that the commission order has not been complied with; and

d. The date and time the city will begin performance of the work.

E. Publication requirements.

1. Notice of a dangerous structure hearing or rehearing must be published in a newspaper of general circulation and must include the same information listed in Section 2.38.090 B.1. through 6.

2. Within ten days of the issuance of a dangerous structure order, the order or an order in an abbreviated form must be published in a newspaper of general circulation. If an abbreviated order is published it must include the street address or legal description of the property, the date the hearing was conducted, a brief statement indicating the result of the hearing and instructions stating where a complete copy of the order may be obtained.

F. Recording requirements.

1. Notice of a dangerous structure hearing or rehearing shall be filed in the El Paso County real property records and that notice binds any party that becomes an interested party subsequent to the day the notice is recorded.

2. Upon receipt of the order, the city clerk shall cause a notice of a dangerous structure order shall be filed in the El Paso County real property records and that notice subjects any subsequent interested party to the requirements of the order. The provisions of this subsection must be included in each order.
(Ord. No. 19112, § 1, 10-27-2020)

2.38.100 Request for continuance.

An interested party may request to have a hearing rescheduled by submitting the request in writing to the commission submitted to the secretary at least twenty-four hours prior to the scheduled hearing. A hearing or rehearing may only be rescheduled if the requesting party did not receive notice ten days before the hearing or other good cause.
(Ord. No. 19112, § 1, 10-27-2020)

2.38.110 Request for modification of a commission order.

An owner of property that is subject to a commission order may request a rehearing in accordance with City Code Section 2.38.120. The owner must demonstrate good cause for the modification. Any modification of an order that extends the time in which the owner has to complete the work must comply with Local Government Code 214.001(h), (i), (j), and (k).
(Ord. No. 19112, § 1, 10-27-2020)

2.38.120 Request for rehearing.

A. The commission may grant one rehearing thirty days or more after the effective date of an order upon written request of the property owner or an interested party subject to the order submitted through the secretary. The requesting party must demonstrate that the rehearing is not for the purpose of delay.

B. The director or designee may, at any time, request a rehearing on any case as determined appropriate. The commission may grant or deny the request.

C. [The established rehearing fee must accompany a request for a rehearing, unless the director or designee of the city manager requests said rehearing. A person may make written] affirmation of an inability to pay the fee, and the commission shall waive the fee if it finds that payment will cause a financial hardship to the person requesting the rehearing.

D. A decision of the commission on the rehearing is final and may be appealed only to district court in accordance with Section 2.38.060 D.
(Ord. No. 19112, § 1, 10-27-2020)

2.38.130 Liens.

A. If the city incurs expenses to fulfill an order under this chapter the city may assess the expense and any ordered civil penalties against the owner and the real property. If the owner fails to satisfy the debt the city may place a lien against the real property the building was located on, pursuant to Texas Local Government Code Section 54.040 and Section 214.010(k), (m), and (o), unless it is a homestead.

B. The notice must contain the name and address of the owner if that information can be determined with diligent effort, a legal description of the real property on which the building was located, the amount of expenses incurred by the municipality, the balance due and that it accrues interest at a rate of ten percent a year from the assessment until paid in full.

C. The lien arises and attaches to the property at the time the notice of the lien is recorded in the El Paso real property records.

D. The lien will be superior to all judicial liens and inferior only to bona fide mortgage liens recorded prior to the filing of the notice of dangerous structure hearing.

E. The lien is extinguished when the amount is paid in full.

F. The city may also seek to reduce the civil penalty to judgment.
(Ord. No. 19112, § 1, 10-27-2020)

Chapter 2.40

DEPARTMENT OF MUSEUMS AND CULTURAL AFFAIRS

Sections:

2.40.010 Department created—Functions.

2.40.020 Fees.

2.40.030 Reserved.

2.40.040 Reserved.

2.40.050 Reserved.

2.40.060 Reserved.

2.40.070 Art in municipal places.

2.40.080 Reserved.

2.40.090 Reserved.

2.40.100 Artist market.

2.40.010 Department created—Functions.

A. There is created a city department, to be known as the museums and cultural affairs department, which shall administer the functions of museums and cultural affairs within the city, including the functions of the El Paso Museum of Art, the El Paso Museum of History, the El Paso Museum of Archaeology, as well as public art, the encouragement, promotion, coordination and improvement of the arts, and related programming, grant-making, cultural tourism and other related functions as assigned by the city manager.

B. The department shall report under the city's organizational structure as set forth in Chapter 2.110 of this Code.

C. The mission of the department will be to assist in developing a world-class arts community in El Paso.

D. The goals of the department will include but not be limited to:

1. Management and operation of the El Paso Museum of Art, El Paso Museum of Archaeology and El Paso Museum of History;

2. Collection, interpretation, preservation and exhibition of works of art and artifacts to maintain and support diverse cultures;

3. Programming internationally acclaimed exhibitions, lectures and educational programs focusing on the permanent collections and temporary exhibitions;

4. Management of cultural funding;

5. Production and presentation of the performing and visual arts programs;

6. Production and presentation of civic arts, culture, historical and heritage events, fairs and activities, utilizing the grounds and facilities of the various museums, as are appropriate within the mission of the department;

7. Implementation of the public art program;

8. Provision of technical assistance for individual artists;

9. Development provision of technical assistance for individual artists of the cultural and heritage tourism program;

10. Partnering with approved agencies in the programming and promotion of the conventions and visitor bureau, Plaza Theater and McKelligon Canyon Amphitheater;

11. Initiation of the arts in education in collaboration with school districts, arts educators, artist and other stakeholders. (Ord. 16764 §§ 1, 2, 2007; Ord. 16196 § 1, 2005: Ord. 16133 § 2, 2005: Ord. 15182 § 2, 2002: prior code § 2-4.1)
(Ord. 17164, § 1, 8-11-2009)

2.40.020 Fees.

A. Fees for membership and admission to classes, facility, object and exhibit rentals at the El Paso Museum of Art, El Paso Museum of History and the El Paso Museum of Archaeology, and for programs provided by the museums and cultural affairs department shall be in the amounts set forth in the budget resolution of the city council or established by the director of the museums and cultural affairs department or his designee, subject to the guidelines and requirements set forth in this chapter. For purposes of this section, persons age sixty or over qualify for any senior citizen rate. Persons with a valid student identification qualify for any student rate. Persons with a valid military identification card or military family identifica-

tion card qualify for any military rate. Persons with a valid City of El Paso employee identification card qualify for any employee rate.

1. Admission fees. There shall be no fee charged for regular admission at the El Paso Museum of Art, El Paso Museum of History or the El Paso Museum of Archaeology; provided, however, that a charge may be imposed for a ticket to a special exhibit within the museum facilities in the amount set forth in the annual budget resolution or other appropriate resolution of the city council, or when a specific amount is not established by resolution, in an amount established by the director, in conjunction with the director of the office of management and budget or his designee, as calculated to recover the exhibit costs. Such charges may be reduced or waived for groups or for specific days as designated by the director in accordance with the policies that have been approved by resolution of the city council or when determined appropriate to promote increased attendance, to honor groups of importance to the city, or to create good will in the community.

2. Membership fees. The department shall administer the membership program for membership to the El Paso Museum of Art, El Paso Museum of History and El Paso Museum of Archaeology in accordance with the policies and procedures established by the director, which may include incentives for members. Membership fees will be in an amount set forth in the annual budget resolution or other appropriate resolution of the city council.

3. Facility rental. The department shall administer facility rentals at the El Paso Museum of Art, El Paso Museum of History and the El Paso Museum of Archaeology in accordance with the policies that have been approved by resolution of the city council. Facility rentals may also include rental of museum equipment to include chairs, tables, podiums, sound system, slide projectors, electronic media projector, TV/VCR/DVD players, and the like. Facility rental fees and equipment rental fees will be in an amount set forth in the annual budget resolution or other appropriate resolution of the city council.

4. Facility use. The director may, in accordance with the policies and procedures approved by resolution of the city council, utilize the grounds and facilities of the various museums as appropriate within the mission of the department, to produce and present civic arts, culture, historical and heritage events, fairs and activities. Such policy may include authorization and guidelines for the selection of persons and organizations to conduct displays and vending of such types and purposes as will further the purpose and enjoyment of the event, fair, or activity by the public, and may include criteria by which the director would be authorized to approve the sale or service of alcoholic beverages in conformity with the Texas Alcoholic Beverages Code. The fees for such uses shall be as set forth within the annual budget resolution or other appropriate resolution of the city council.

5. Curatorial fees. The department shall administer loans of art, artifacts and one time use of copyright in accordance with all applicable laws and the collection, care and management policy approved by resolution of the city council. The loan fees and copyright fee shall be determined in accordance with the collection, care and management policy that has been approved by resolution of the city council and shall be in the amount or within the parameters as set forth in the annual budget resolution or other appropriate resolution of the city council. The director, in conjunction with the director of the office of management and budget or his designee, shall establish a specific fee within a range of parameters for a fee, so as to recover the city's costs of administration or use.

6. Class fees. The department is authorized to create and schedule classes available to the public through the El Paso Museum of Art, the El Paso Museum of History, El Paso Museum of Archaeology, and through the department. Such classes shall serve or further the purpose and mission of the department. The fee for such classes set forth in the annual budget resolution shall be in the amount listed therein or within the parameters of the amounts listed therein. When the fee has

been authorized within a range of parameters, the director, in conjunction with the director of the office of management and budget or his designee, shall establish the exact fee to be charged in an amount calculated to recover the cost of the class. The director is authorized to develop additional classes throughout each fiscal year and charge a fee for such classes in an amount calculated by the director, in conjunction with the director of the office of management and budget or his designee, to recover the cost of the class.
(Ord. 17164, § 2, 8-11-2009; Ord. No. 17382, § 1, 8-24-2010, eff. 9-1-2010; Ord. No. 18714, §§ 1—3, 8-8-2017)

2.40.030 Reserved.

Editor's note—Ord. No. 019774, § 1, adopted Aug. 19, 2025, repealed § 2.40.030, which pertained to advisory board—created—members—appointment and derived from Ord. 16764 § 4, adopted 2007; Ord. 11518 (part), adopted 1993; Ord. 10927 (part), adopted 1992; and Ord. No. 17424, § 1, adopted Sep. 21, 2010.

2.40.040 Reserved.

Editor's note—Ord. No. 019774, § 1, adopted Aug. 19, 2025, repealed § 2.40.040, which pertained to advisory board—members—terms and derived from Ord. 16764 § 5, adopted 2007; Ord. 11518 (part), adopted 1993; Ord. 10927 (part), adopted 1992; Ord. No. 17424, § 1, adopted Sep. 21, 2010.

2.40.050 Reserved.

Editor's note—Ord. No. 019774, § 1, adopted Aug. 19, 2025, repealed § 2.40.050, which pertained to advisory board—officers and quorum and derived from Ord. 16764 § 6, adopted 2007; Ord. 10927 (part), adopted 1992; and Ord. No. 17424, § 1, adopted Sep. 21, 2010.

2.40.060 Reserved.

Editor's note—Ord. No. 019774, § 1, adopted Aug. 19, 2025, repealed § 2.40.060, which pertained to museums and cultural affairs advisory board—duties and derived from Ord. No. 17424, § 1, adopted Sep. 21, 2010.

2.40.070 Art in municipal places.

A. Purpose—The intent of this section is to promote and encourage private and public programs to further the development and public awareness of, and interest in, the fine arts and cultural properties, to increase employment opportunities in the arts, to encourage the integration of art into the architecture of municipal structures for the city, and to provide for the citizens of the city high quality, publicly accessible works of art, which contribute to the urban landscape and symbolize the city's sense of place.

B. For this section, the following definitions apply:

1. "Acquisition" means the acquiring of works of art by purchase, exchange, or gift.

2. "Capital improvements program" means all projects financed by general obligation bonds and revenue bonds, and certificates of obligation, except for capital acquisitions and the Plaza Theatre Project.

3. "Project" means any construction activity undertaken pursuant to the capital improvements program.

4. "Commission" means the selections and contracting of an artist or artist team to the task of creating a work of art for a fee.

5. "Museums and cultural affairs advisory board" means the board established by resolution by city council.

6. "Public art committee" (PAC) means a subcommittee of the museums and cultural affairs advisory board appointed to oversee quality control of the public art program and projects and to recommend the scope of projects, artworks, and artists for the public art program.

7. "Public art program" means the process for administration, selection, approval, funding, acquisition, or commissioning of public works of art under this section.

8. "Public art plan" means an annual prioritized list, to be recommended by the museums and cultural affairs advisory board and approved by the city council, of public art projects, including budgets, location, artist selection process and recommended design approaches, developed by the PAC in consultation with city departments anticipating capital improvement projects.

9. "Work of art" means any public art project that is a work of visual art, including but not limited to, a drawing, painting, mural, fresco, sculp-

ture, mosaic, photograph, work of calligraphy, work of graphic art (including an etching), works in clay, textile, fiber, wood, metal, plastic, glass, stone, concrete, and like materials, or mixed media (including a collage, assemblage, or any combination of the foregoing art media). For projects that involve no structure, a work of art may include a combination of landscaping and landscape design (including some natural and manufactured materials such as rocks, fountains, reflecting pools, sculpture, screen, benches, and other types of streetscapes. A work of art may include an artist participating in master planning, conceptual development, design development, construction drawings, or construction oversight for any municipal project. Except as provided herein, the term "work of art" excludes the performing arts of dance, music, theatre, or the literary arts, unless expressed in or combined with a work of visual art or design.

C. Funding of the public art program:

1. Projects in the capital improvements program shall include an amount for works of art equal to two percent of the total funding available for the project whether funded by general obligation bonds, revenue bonds or certificates of obligation, but shall not include capital acquisitions or the Plaza Theatre Project; provided, however, that if the bond election ordinance, the bond ordinance authorizing revenue bonds, other appropriate laws or regulations, or an official interpretation by the State Attorney General regarding allowable uses for funds which it is providing for the project precludes art as an expenditure of funds, the amount of funds so restricted shall be excluded from the total funding available in calculating the amount to be committed to works of art.

2. In order to ensure that works of art have sufficient public visibility and impact, funds generated from the various capital improvements program projects, if allowed by law, may be pooled or aggregated together and utilized for one or more large works of art as recommend by the museums and cultural affairs advisory board and PAC and upon approval by city council.

3. Funds generated as described in Section C.1 above shall be budgeted as part of the capital improvements program budget. Additional private or public contributions for works of art may be added to these funds and shall be budgeted in a similar manner. Such contributions may be earmarked for particular projects. A fund or funds will be established within the museums and cultural affairs department (MCAD) for public art program funds to be administered by the director of the MCAD.

4. No more than fifteen percent of the total amount for works of art may be expended for the administrative costs of the public art program. Examples of administrative costs shall include, but not be limited to, direct administrative costs of conducting a competition or search for a work of art, education and marketing efforts, and of employing consultants for planning and research and project management.

D. Public art plan: The museums and cultural affairs advisory board shall submit an annual public art plan to the city council for approval. The public art plan shall include new projects to be initiated in the following fiscal year, and shall describe the planned location, proposed budget, timetable and artist selection process for each project; as well as updates on public art projects in progress.

E. An artist or artist team will be contracted for the commissioning or purchase of art. Progress payments may be made to the artist for works of art that have been recommended by the museums and cultural affairs advisory board and approved by the city manager and/or council. Such payments may reimburse the artist for the cost of materials. The city, through MCAD, may negotiate a final payment to the artist or artist team that will be withheld until completion of the work and accession into the city's public art collection. The final payment shall be no less than fifteen percent. If feasible, and if the law allows, the city, through MCAD, may negotiate a payment of up to twenty percent of the total project cost to the artist once the contract is signed for the purchase of material, design work, or labor.

F. Nothing contained herein shall preclude funding the acquisition of art for municipal property in other ways.

(Ord. No. 17424, § 1, 9-21-2010; Ord. No. 019774, § 2, 8-19-2025)

Editor's note—Ord. No. 17424, § 1, adopted September 21, 2010, amended § 2.40.070 in its entirety to read as herein set out. Former § 2.40.070, pertained to cultural affairs advisory board—duties, and derived from Ord. No. 16764 §§ 8, 9, 2007; Ord. 16196 § 4, 2005.

2.40.080 Reserved.

Editor's note—Ord. No. 019774, § 1, adopted Aug. 19, 2025, repealed § 2.40.080, which pertained to administration of the public art program and establishment of the public art committee and derived from Ord. No. 17424, § 1, adopted Sep. 21, 2010.

2.40.090 Reserved.

Editor's note—Ord. No. 17424, § 1, adopted September 21, 2010, repealed § 2.40.090, which pertained to museum of archaeology advisory board and derived from Ord. 16764 § 11, 2007.

2.40.100 Artist market.

A. Definitions. As used in Section 2.40.100, the following terms shall have the following meanings:

1. "Artist market" means the sale of locally made, home crafted or hand assembled arts and crafts, which have been home crafted or hand-assembled or produced by the seller or members of the seller's household, including leather goods; drawings, paintings and prints; photographs; woodwork; metalcraft; ceramics and pottery; weaving and yarn work; macramé; needlework; beadwork; sculpture; jewelry; stitchery and sewing; clothing and accessories; glasswork; natural fiber crafts and basketry; live street music performers without amplification, more specifically defined in Artist Market Policies and Procedures (hereinafter "policies and procedures") authorized to be developed by the museums and cultural affairs department.

2. "Union Plaza Area" means the area bounded by the northern boundary of San Francisco Street, the Eastern boundary of Durango Street, the Southern Boundary of San Antonio Street and the Westerly boundary of Anthony Street.

3. "Artist market manager" means the city manager or designee appointed to administer the city's policies and procedures relevant to the organization, administration and management of the artist market and events related thereto.

4. "Homemade or hand assembled" means an item that has two or more distinctive parts, combined and permanently attached by intent, labor, creativity and skill to produce a more attractive or valuable product, which were made by the vendor.

5. "Region" means within one hundred miles of the Union Plaza Area.

6. "Vendor" means resident of the region who displays and sells homemade or hand assembled goods at the artist market and those who are members of the same household. A vendor shall not have a storefront or sell his or her artwork from a store, with the exception of vendor applicants who have a storefront in the Union Plaza Area. A vendor must be eighteen years old or older.

B. Authorization. The city manager or a designee is hereby authorized to create an outdoor artist market permitting vendors to sell handmade or hand assembled merchandise. The artist market will take place in the Union Plaza Area on any Saturday during the year as scheduled by the artist market manager, and each event may run from 5:00 a.m. until 2:00 p.m., which includes time for set-up, event open to members of the public for purchase of merchandise and tear down. The city manager or a designee is hereby authorized to establish artist market procedures (the "procedures") for its operation in compliance with this chapter.

C. Vendor permit.

1. The artist market manager may issue a permit authorizing a person to be a vendor at the

artist market. Such permit shall contain the vendor's name and the type of handmade or hand assembled merchandise that is authorized for sale at the artist market.

2. Vendor spaces at the artist market will be available on a first come, first served basis at each scheduled event. The fee for weekly use of vendor spaces shall be in the amount set forth in the budget resolution of the city council or another resolution of the city council. A vendor must purchase no less than four weekly vendor space uses at a time.

3. The city manager or a designee and is hereby authorized to approve, deny, revoke or suspend such permit. Grounds to deny, revoke or suspend a permit are as follows:

(a) A violation of this chapter; or

(b) A public offence or disturbance that causes disruption to the operation of the artist market.

4. Decision review.

(a) Intent of review - The applicant must submit a written request for review letter to the artist market manager within twenty-one business days from the date of the denial, revocation or suspension. This correspondence must be addressed to the artist market manager, and must include specific information identifying the applicant, the type of handmade or hand assembled craft for which a vendor permit is being applied for, and a brief description on the basis of which an review is being sought (e.g., administrative error, conflict of interest, presentation of misinformation, etc.).

(b) Conference - Following the receipt and review of the request for review letter, the director of MCAD ("director") will then schedule a conference with the appellant to review and discuss the denial, revocation or suspension of the vendor permit, and to allow the applicant to express his or her reasons for requesting review of the decision. Based on the findings of this conference, a response document will be developed by the director or a designee identifying the findings, and will be provided to the applicant within ten business days.

(c) Conclusion - If the director finds grounds for review and reconsideration, the permit application will be re-evaluated by the city manager or designee with consideration of the findings of the conference.

D. Use of Union Plaza and Streets.

1. The museums and cultural affairs department (the "department") is authorized to use the Union Plaza to conduct the artist market only during the days and hours as set forth in the policies and procedures established by the city manager or a designee.

2. Use of the public rights-of-way must be in compliance with Sections 12.30.030 D., 13.20.040 C.4. and 15.08.120 G. of this Code. The department shall be exempt from the permitting requirement, however shall notify the El Paso Department of Transportation ("EPDOT") on a quarterly basis of dates, times, and shall provide a master traffic control plan approved by the city traffic engineer for all planned artist market events. The department shall notify EPDOT of any changes within thirty days of the changed event.

3. The department is hereby authorized to temporarily close the public right-of-way in the Union Plaza Area for the purpose of any artist market scheduled in accordance with this chapter during the days and times specified in this chapter.

E. Proof of tax eligibility. All vendors must provide proof of gross receipts tax collection capabilities when conducting business at the artist market, which must either be a state sales tax permit or an exemption certificate. Proof shall be provided to the city manager or a designee. All vendors shall abide by all federal and state laws regarding taxation and immigration.

F. Vendor requirements.

1. Vendors must permit the artist market manager or a designee to inspect the homemade or hand assembled artwork to verify authenticity at the vendors studio or location where the artwork is made as well at the artist market.

2. A vendor must not display, offer for sale, or sell any merchandise in the artists market without a permit issued pursuant to this chapter and the policies and procedures.

3. All vendors must sell only merchandise authorized and approved under the policies and as the vendor's individual permit allows. Vendor must display his or her permit at all times when displaying or offering merchandise at the artist market.

4. A vendor must pay the permit fee established by resolution of the city council before using or occupying space at the artist market, unless exempt under this chapter.

5. Vendor permits will not be issued for items made in any medium which are commonly used, or intended to be used for the consumption of illegal drugs, to include but not be limited to pipes, bongs and other paraphernalia. These items are prohibited from the artist market.

6. Vehicles.

(a) All vehicles shall be removed from the Union Plaza area fifteen minutes prior to the start of the artist market. All vehicles are prohibited from driving on the sidewalks in Union Plaza during the artist market, with the exception of city and emergency vehicles, vehicles authorized by the department under the procedures, and artist market vehicles used to load and unload merchandise and equipment during specified times as designated in the procedures.

(b) The active use of bicycles, skateboards, roller blades, and roller skates are prohibited in the Union Plaza area during artist market hours with the exception of such items used by law enforcement personnel or pedicabs licensed under Chapter 6.34 of this Code.

(c) No person shall cause an obstruction of the entrances of businesses adjacent to artist market.

7. Vendors must remove all equipment, supplies, and trash from the vendor space and leave the vendor space in the same condition that it was in upon vendor's arrival.

8. Vendors may not display or sell obscene items as defined in the Texas Penal Code Chapter 43.

9. It is unlawful for any person to do any act forbidden, or fail to perform any act required in subsection F.6.

G. Specially reserved vendor spaces.

1. Two vendor spaces in the artist market are reserved for use by a licensee who is 60 years of age or older or physically disabled.

2. A person may not claim use of or occupy a space reserved under this section unless the person is licensed under this chapter and meets the above requirements and follows the procedures established pursuant to this chapter.

3. A person obtaining a permit under this section G. is exempt from the permit fee established if the person provides proof that he is sixty years of age or older or certification of disability in accordance with the procedures established pursuant to this chapter.

(Ord. No. 17580, § 1, 6-14-2011)

Chapter 2.44

COURTS

Sections:

2.44.010 Created.

2.44.020 Court of appeals.

2.44.030 Judges.

2.44.040 Practice and procedure.

2.44.050 Summons and citations—Unlawful disposition designated.

2.44.060 Summons and citations—Fee schedule—Payments.

2.44.070 Summons and citations—Authority to receive and approve bonds.

2.44.080 Special expense fee.

2.44.090 Court costs.

2.44.100 Juror reimbursement.

2.44.010 Created.

A. The municipal court established by the City Charter shall be styled the El Paso Municipal Court of Record No. 1.

B. There are created under the authority of V.T.C.A., Government Code ch. 30, and successor statutes, four additional municipal courts which shall be styled respectively: the El Paso Municipal Court of Record No. 2; the El Paso Municipal Court of Record No. 3; the El Paso Municipal Court of Record No. 4; and the El Paso Municipal Court of Record No. 5. The presiding judge's court may include sub-courts under the direction and supervision of the presiding judge. Such sub-courts shall be presided over by one or more substitute associate judges appointed by city council and may include: the El Paso Arraignment Court, a day or night magistrate court, and a temporary court for no longer than one year, established with approval of city council by resolution to provide efficient adjudication of a large number of pending cases caused by unforeseen circumstances.

C. The municipal courts of the city are established as courts of record in accordance with the terms and provisions, powers, duties and limitations as set forth in Chapter 30, Government Code, and successor statutes.

D. Each municipal court shall be presided over by a municipal judge or, if a municipal judge is unavailable, one or more substitute associate judges.

E. The city manager shall appoint a municipal court clerk to serve as the clerk of the municipal courts of record who shall perform the duties and manage the administrative operations of the municipal courts in accordance with state law, the City Charter and city ordinances. Deputy clerks may be appointed by the city manager or designee as deemed necessary for the proper and efficient operation of the courts. The municipal court clerk shall provide all support services and personnel required for the judicial operations of the court. The municipal court clerk shall have custody of all papers, books and documents belonging and pertaining to the court, shall receive, prepare and file all complaints and docket each case, and shall discharge the duties attendant upon that position as prescribed by applicable state law and by the city council. (Ord. 15183 § 1, 2002: Ord. 14172 § 1, 1999: prior code § 7-1)
(Ord. No. 18704, § 1, 6-27-2017; Ord. No. 19199, §§ 1, 2, 6-8-2021)

2.44.020 Court of appeals.

A. The El Paso Municipal Court of Appeals is established in accordance with the terms and provisions, powers, duties and limitations as set forth in Chapter 30, Government Code, and successor statutes.

B. The El Paso Municipal Court of Appeals shall be presided over by an appellate judge who shall be selected in accordance with the terms and provisions, powers, duties and limitations as set forth in Chapter 30, Government Code, and successor statutes.

C. In accordance with Chapter 30, Government Code, and successor statutes, and in addition to other duties associated with the position, the

city clerk shall serve as the appellate court clerk. (Ord. 14172 § 2, 1999: prior code § 7-2)
(Ord. No. 18704, § 2, 6-27-2017)

2.44.030 Judges.

A. In addition to the qualifications prescribed in the City Charter, the presiding municipal judge shall be a licensed attorney at law who has practiced law in Texas at least five years prior to his or her election by a majority of the municipal judges.

B. The term of office for the elected judges shall be as provided in the City Charter.

C. The city council will appoint one or more substitute associate municipal judge to four-year terms, on full-time or part-time basis as necessary based on the advice of the city manager through the municipal court clerk, to sit, under the discretion and supervision of the presiding judge, for the regular judge of any municipal court when such regular judge is temporarily unable to act for any reason, or for any sub-court described in Section 2.44.010B. Each substitute associate municipal judge shall possess the same qualifications required of the regular municipal judges and shall have all the powers and duties of the judge for whom such substitute associate municipal judge is sitting while so acting.

D. The term of office for the substitute associate municipal judges is four years. The term of office for any substitute associate municipal judge appointed by the council for a term beginning in June 2003, and who was automatically reappointed in 2005 by operation of law, shall expire in June 2007. Thereafter, appointments to the positions with terms expiring in June 2007 shall be for four-year terms. The term of office for substitute associate municipal judges appointed by the council for a term beginning in June 2005 shall be for four years.

E. When a vacancy arises in a position of municipal court judge or substitute associate municipal court judge, or new appointments of judges are necessary, the following selection process will be utilized.

1. The municipal court clerk will notify the city manager, mayor, and members of the city council of the vacancy or need for the council to make appointments.

2. The human resources department will post a public notice in the same manner as city council agendas are posted, announcing the acceptance of resumes of interested candidates requesting to be considered in the selection process and will set a deadline for candidates to submit those resumes to the human resources department.

3. The human resources department will ensure all candidates qualify for the position posted.

4. The municipal court clerk will forward the names and resumes of the candidates to the city manager, mayor, and members of the city council no later than ten days after the deadline set for the submission of resumes.

5. The municipal court clerk will place an appropriate item on the city council agenda to enable the city council to interview qualified candidates and make the appropriate appointments.

F. Any substitute associate municipal judge appointed pursuant to subsection C of this section may be assigned to serve as arraignment judge, magistrate, or over a temporary court established under Section 2.44.010B. under the supervision of the presiding municipal judge. The duties of magistrate shall be those prescribed by the laws of the state, particularly the Code of Criminal Procedure, at the discretion of the presiding judge.

G. A vacancy in the office of elected judge is filled by appointment by the city council and the person appointed serves until the next regular municipal election, at which time his successor shall be elected. An appointee may succeed himself or herself.

H. A vacancy in the office of substitute associate judge is filled by appointment by the city council and the person appointed serves the re-

mainder of the expired term. (Ord. 16274 § 1, 2006: Ord. 14172 § 3, 1999: Ord. 12403, 1995: prior code § 7-3)
(Ord. No. 19199, §§ 3—5, 6-8-2021; Ord. No. 019590, § 1, 2-13-2024)

2.44.040 Practice and procedure.

A. The following practice and procedure is established for the municipal courts of record of the city:

1. In lieu of a physical arrest, or as otherwise provided by law, every police officer or other employee of the city who is charged with the responsibility of enforcement of any law or ordinance within the jurisdiction of the municipal courts of the city may issue a citation or notice of violation for any state law violation punishable only by fine, as defined in V.T.C.A., Code of Criminal Procedure art. 4.14(c), or for any violation of a municipal ordinance, regulation or rule.

2. Such citation or notice of violation shall contain all information required by the relevant federal, state or local law.

3. Every person, other than a person under the age established by state law as a juvenile, issued a citation may, in lieu of appearing at a hearing on the arraignment date set forth on the citation, make payment to the municipal court. Payment must be made in accordance with the procedures set forth in Section 2.44.060 of this Code.

4. Failure of any person cited in accordance with the provisions of this section to make arrangements for payment or to appear at the assigned arraignment date or a court hearing before the municipal courts of the city as herein required shall result in the immediate issuance of a capias as provided in V.T.C.A., Code of Criminal Procedure art. 23.04, or summons directed to the individual cited.

B. The procedure provided for in subsection A of this section is not authorized in any of the following circumstances:

1. When the person to be arrested demands an immediate appearance before a magistrate.

2. When the person to be arrested fails or refuses to give satisfactory identification or furnish the other information required of him in subsection (A)(2) of this section.

3. When the person to be arrested is intoxicated to a degree where he is unable to care for himself.

C. Nothing contained in this section shall make the issuance of a citation mandatory for offenses in violation of any law or ordinance within the jurisdiction of the municipal courts of the city, it being the sole intent of this section to provide an alternate method for procedures to be initiated before the municipal courts of the city.

D. The municipal court clerk shall supervise the selection of persons for jury service.

E. The records of the El Paso municipal courts and the El Paso municipal court of appeals shall be maintained separately in accordance with the provisions of Chapter 30 of the Texas Government Code. All documents required by state law to be filed with or mailed to the El Paso municipal courts or the clerk of the municipal court shall be filed with or mailed to the office of the municipal court clerk located with the El Paso municipal courts. All documents or appellate court decisions required by state law to be filed with the El Paso municipal court of appeals or the appellate court clerk shall be filed with the office of the city clerk located in city hall. (Ord. 15183 § 2, 2002: Ord. 14862 § 1, 2001: Ord. 14172 § 4, 1999: Ord. 11048 § 1, 1992; prior code § 7-4)
(Ord. No. 19199, § 6, 6-8-2021)

2.44.050 Summons and citations—Unlawful disposition designated.

It is unlawful for any police officer or any other employee of the city to take up, destroy, excuse, cancel, or, in any way, revoke or impair the operation of any traffic ticket, citation or notice issued by a peace officer of the city to any violator or alleged violator of traffic regulation, or any other process, summons, citation, ticket or other paper issued by the police force in connection with any criminal case, within the jurisdiction of the

municipal court of the city, whether at the solicitation of any city official or other person whomsoever, and it is unlawful for any city official or employee, or any other person, to solicit of any police officer or other city employee or official the dismissal, cancellation, taking up or other disposition of any such ticket, citation, notice, summons, or process issued by a member of the police force of the city, in any manner within the jurisdiction of the municipal court of the city. Nothing herein contained shall be construed to prevent the making of any proper motion or request addressed to the municipal court. (Prior code § 7-5)

2.44.060 Summons and citations—Fee schedule—Payments.

A. The judges of the municipal courts may from time to time establish a schedule of amounts of money which may be paid at the by persons who have been issued traffic tickets or class "C" citations or notice of violation for violations of any offense, within the jurisdiction of the municipal court. The schedule shall be uniform for all the municipal courts. If the judges do not all agree on the schedule, the agreement of a majority will be sufficient; and if no majority agreement is reached the matter may be determined by the presiding judge. The amount fixed in the schedule for each class of offense, or subdivision under a class, shall not be more than the largest fine which could be imposed therefor.

B. Payment at the according to such schedule may be made (either in person, on-line, mail, phone, or electronically) by the person charged, or by an attorney at law authorized to represent him, or by any other person if such other person files with written authority therefore from the person charged.

C. Within ten days after such payment is made the person charged may request the clerk or his deputy for a hearing on the case, and the clerk shall then put the case in the trial queue to await the setting of a trial date.

D. If the person charged does not request a hearing within ten days the clerk shall report the case to the presiding judge, who may (either by separate written instrument or by endorsement of a list of cases in which trial has not been requested within ten days) accept the amount paid; and such acceptance shall constitute a finding of guilty in open court as though a plea of nolo contendere had been entered by the defendant; provided, the judge may on his own motion refuse to accept the amount paid, and he shall then order the case set down for trial; and the judge shall refuse to accept the amount and shall order the case set down for trial if the prosecuting attorney so requests.

E. If the judge accepts the amount paid as herein set forth, such payment shall not thereafter be refunded, and the person charged shall be relieved of any duty thereafter to appear for trial on such violation.

F. The municipal court may accept payment agreements for amounts owed under this section.

G. The person charged shall not have the privilege of making the payment as set forth herein, and the municipal court shall not receive the payment, if in the particular case a judge or a prosecuting attorney has instructed the court that such case will be tried and that the person charged is not to be released without making bail in one of the ways provided by law.

H. In lieu of making a payment fixed by the schedule herein set forth, the person charged shall have the right, if the person requests to ask for a court setting or giving bail as in other cases.

I. No judge of the municipal court shall dismiss any case (whether a traffic violation or other charge) except at a trial in open court or upon motion of a prosecuting attorney. (Prior code § 7-6) (Ord. No. 19199, § 7, 6-8-2021)

2.44.070 Summons and citations—Authority to receive and approve bonds.

In all cases arising out of any alleged violation of the laws of the city or the state within the jurisdiction of the municipal courts of the city, the clerk of the municipal court shall have concurrent authority to receive and approve bonds in amounts

to be fixed by a judge of the municipal court. (Ord. 14172 § 5, 1999: prior code 7-7)

2.44.080 Special expense fee.

In accordance with V.T.C.A., Code of Criminal Procedure, art. 45.203, each municipal court judge may, as a result of the issuance and service of a warrant of arrest for an offense under V.T.C.A., Penal Code, § 38.10, or V.T.C.A., Transportation Code, § 543.009, impose a fee upon the subject of said warrant in the amount allowed by law, provided that a written notice of the warrant was sent to the subject at the address provided by the subject at the time of the issuance of the citation or other address provided by the subject to the court, whichever was provided later, and the subject failed to respond to the notice or contact the court. (Ord. 14172 § 6, 1999: Ord. 8507, 1985: Ord. 8146, 1984: prior code § 7-8)
(Ord. No. 19199, § 8, 6-8-2021)

2.44.090 Court costs.

A defendant convicted of an offense taking place on or after September 1, 1995, shall pay a three dollar security fee as a court cost to the El Paso Municipal Courts of Record for the "municipal court security fund." The proceeds from this fund shall be used to provide security for the building housing the El Paso Municipal Courts of Record, in accordance Article 102.017(d), Texas Code of Criminal Procedure.

A defendant convicted of an offense taking place on or after September 1, 1999 shall pay a four dollar technology fund fee as a court cost to the El Paso Municipal Courts of Record for the "municipal court technology fund." The proceeds from this fund shall be used to finance the purchases and the maintenance of technological enhancements for the municipal courts in accordance with Article 102.0172, Texas Code of Criminal Procedure. (Ord. 15664 § 1, 2004; Ord. 14172 § 7, 1999: Ord. 12500, 1995: Ord. 10678, 1991)

2.44.100 Juror reimbursement.

A. Each municipal court jury panel member present for service at voir dire examination and not ultimately selected for jury membership is entitled to receive, as reimbursement for travel and other expenses, and amount of six dollars for each day or fraction of each day served.

B. Each municipal court jury panel member selected and seated as a jury member is entitled to receive, as reimbursement for travel and other expenses, an amount of forty dollars for each day or fraction of each day served. (Ord. 15405 § 1, 2003)

Chapter 2.45

ATTORNEYS

Sections:

2.45.010 Disqualified.

2.45.010 Disqualified.

The city attorney and assistant city attorneys shall not be of counsel adversely to the city in any case, in any court, nor shall they, after they cease to hold such positions, be of counsel adversely to the city in any case in which they have been of counsel for the city; further, neither the city attorney nor assistant city attorneys shall be of counsel in any criminal case adversely to the state. (Ord. 9666, 1989)

Chapter 2.48

EMERGENCY MANAGEMENT*

Sections:

2.48.010 Organization.

2.48.020 Emergency management director—Powers and duties.

2.48.030 Emergency management plan.

2.48.040 Interjurisdictional program.

2.48.050 Override.

2.48.060 Liability.

2.48.070 Commitment of funds.

2.48.080 Offenses—Penalties.

2.48.090 Limitations.

* Prior history: Prior code §§ 6A-1 through 6A-9.

2.48.010 Organization.

A. There exists the office of emergency management director of the city, which shall be held by the mayor in accordance with state law.

B. The emergency management coordinator shall be the current director of emergency preparedness, and such employee shall remain a classified employee of the city.

C. The director shall be responsible for a program of comprehensive emergency management within the city and for carrying out the duties and responsibilities set forth in this chapter. He/she may delegate authority for execution of these duties to the coordinator, but ultimate responsibility for such execution shall remain with the director.

D. The operational emergency management organization of the city shall consist of the officers and employees of the city so designated by the director in the emergency management plan, as well as organized volunteer groups. The functions and duties of this organization shall be distributed among such officers and employees in accordance with the terms of the emergency management plan. (Ord. 9039 § 1, 1987)

2.48.020 Emergency management director—Powers and duties.

The duties and responsibilities of the emergency management director shall include the following:

A. Conduct an ongoing survey of actual or potential hazards which threaten life and property within the city, and an ongoing program of identifying and requiring or recommending the implementation of measures which would tend to prevent the occurrence or reduce the impact of such hazards if a disaster did occur;

B. Supervision of the development of an emergency management plan for the city, and recommendation of that plan for adoption by the city council along with any and all mutual-aid arrangements deemed necessary for the implementation of such plan;

C. Authority to declare a local state of disaster. The declaration may not be continued or renewed for a period in excess of seven days except by or with the consent of the city council. Any order or proclamation declaring, continuing or terminating a local state of disaster shall be given prompt and general publicity and shall be filed promptly with the city clerk;

D. Direction and control of the operations of the El Paso emergency management organization as well as the training of emergency management personnel;

E. Determination of all questions of authority and responsibility that may arise within the emergency management organization of the city;

F. Maintenance of liaison with other municipal, county, district, state, regional or federal emergency management organizations;

G. Marshaling of all necessary personnel, equipment or supplies from any department of the city to aid in the carrying out of the provisions of the emergency management plan;

H. Issuance of necessary proclamations, regulations or directives which are necessary for the protection of life and property in the city. Such proclamations, rules, regulations or directives shall

be filed in the office of the city clerk and shall receive widespread publicity unless publicity would be of aid and comfort to the enemy;

I. Supervision of the drafting and execution of mutual-aid agreements, in cooperation with the representatives of the state and of other local political subdivisions of the state, and the drafting and execution, if deemed desirable, of an agreement with the county in which the city is located and with other municipalities within the county, for the county-wide coordination of emergency management efforts;

J. Supervision of, and final authorization for, the procurement of all necessary supplies and equipment, including acceptance of private contributions which may be offered for the purpose of improving emergency management within the city;

K. Authorizing of agreements, after approval by the city attorney, for use of private property for public shelter and other purposes;

L. Survey of the availability of existing personnel, equipment, supplies and services which could be used during a disaster, as provided for in this chapter;

M. Other requirements as specified in Texas Disaster Act 1975 (V.T.C.S. Article 6889-7). (Ord. 9039 § 2, 1987)

2.48.030 Emergency management plan.

A comprehensive emergency management plan shall be developed and maintained in a current state. The plan shall set forth the form of the organization, establish and designate divisions and functions, assign responsibilities, tasks, duties and powers, and designate officers and employees to carry out the provisions of this chapter. As provided by state law, the plan shall follow the standards and criteria established by the State Division of Emergency Management of the State of Texas. Insofar as possible, the form of organization, titles and terminology shall conform to the recommendations of the State Division of Emergency Management. When approved, it shall be the duty of all departments and agencies to perform the functions assigned by the plan and to maintain their portion of the plan in a current state of readiness at all times. The emergency management plan shall be considered supplementary to this chapter and shall have the effect of law during the time a disaster emergency proclamation is in effect. (Ord. 9039 § 3, 1987)

2.48.040 Interjurisdictional program.

The mayor is authorized to join with the county judge of the county of El Paso and the mayors of the other cities in the county in the formation of an emergency management council for the county of El Paso, and shall have the authority to cooperate in the preparation of a joint emergency management plan and in the appointment of a joint emergency management coordinator, as well as all powers necessary to participate in a county-wide program of emergency management insofar as said program may affect the city. (Ord. 9039 § 4, 1987)

2.48.050 Override.

At all times when the orders, rules and regulations made and promulgated pursuant to this chapter shall be in effect, they shall supersede and override all existing ordinances, orders, rules and regulations insofar as the latter may be inconsistent therewith. (Ord. 9039 § 5, 1987)

2.48.060 Liability.

This chapter is an exercise by the city of its governmental functions for the protection of the public peace, health and safety, and neither the city, the agents and representatives of the city, nor any trustee, nor any of the agents thereof, in good faith carrying out, complying with or attempting to comply with any order, rule or regulation promulgated pursuant to the provisions of this chapter shall be liable for any damage sustained to persons as the result of said activity. Any person owning or controlling real estate or other premises who voluntarily and without compensation grants to the city a license of privilege, or otherwise permits the city to inspect, designate and use the whole or any part or parts of such real estate or

premises for the purpose of sheltering persons during an actual, impending or practice enemy attack or natural or manmade disaster shall, together with his successors in interest, if any, not be civilly liable for the death of, or injury to, any persons on or about such real estate or premises under such license, privilege or other permission or for loss of, or damage to, the property of such person. (Ord. 9039 § 6, 1987)

2.48.070 Commitment of funds.

No person shall have the right to expend any public funds of the city in carrying out any emergency management activity authorized by this chapter without prior approval by the city council, nor shall any person have any right to bind the city by contract, agreement or otherwise without prior and specific approval of the city council, unless during a declared disaster. During a declared disaster, the mayor may expend and/or commit public funds of the city when deemed necessary for the protection of health, life and property. (Ord. 9039 § 7, 1987)

2.48.080 Offenses—Penalties.

A. It is unlawful for any person willfully to obstruct, hinder or delay any member of the emergency management organization in the enforcement of any rule or regulation issued pursuant to this chapter, or to do any act forbidden by any rule or regulation issued pursuant to the authority contained in this chapter.

B. It is likewise unlawful for any person to wear, carry or display any emblem, insignia or any other means of identification as a member of the emergency management organization of the city, unless authority to do so has been granted to such person by the proper officials.

C. Any unauthorized person who operates a siren or other device so as to simulate a warning signal, or the termination of a warning, shall be deemed guilty of a violation of this chapter and shall be subject to the penalties imposed by this chapter.

D. Convictions for violations of the provisions of this chapter shall be punishable as provided in Section 1.08.010 of this Code. (Ord. 9039 § 8, 1987)

2.48.090 Limitations.

This chapter shall not be construed so as to conflict with any state or federal statute or with any military or naval order, rule or regulation. (Ord. 9039 § 10, 1987)

Chapter 2.52

SPECIAL POLICEMEN

Sections:

2.52.010 Authority to appoint.

2.52.020 Application—Required—Fingerprinting—Fee.

2.52.030 Application—Investigation—Mental and moral qualifications.

2.52.040 Appointment—Duration.

2.52.050 Appointment—Report of to mayor—Summoning appointee to service.

2.52.060 Oath.

2.52.070 Authority—Rules and regulations—Compensation.

2.52.080 No vested rights—Suspension or revocation.

2.52.090 Reappointment application—Fee.

2.52.100 Review by council of chief's actions—Decision to be final.

2.52.110 Mayor's powers not restricted.

2.52.010 Authority to appoint.

The chief of police is authorized to appoint special policemen under the conditions set forth in this chapter. (Prior code § 2-4 (part))

2.52.020 Application—Required—Fingerprinting—Fee.

The applicant for such appointment shall file a written application giving all information, and the vouchers or recommendations, required of applicants for positions on the regular police force, and shall be fingerprinted, but shall not be required to take a civil service examination. The application shall state the purpose for which such special appointment is wanted, and the necessity or desirability of appointing a special policeman for such purpose and shall be accompanied by payment of a fee of twenty-five dollars, which will not be returned. (Prior code § 2-4(1))

2.52.030 Application—Investigation—Mental and moral qualifications.

The chief of police shall make such investigation as may be appropriate to determine the fitness of the applicant and the necessity or desirability of making the appointment from the standpoint of the public interest. The applicant shall have the mental and moral qualifications necessary for an appointment on the regular police force, but the physical qualifications may be waived. (Prior code § 2-4(2))

2.52.040 Appointment—Duration.

If the chief of police is satisfied that such appointment is necessary or desirable for the maintenance of the public peace, order or safety, and that the applicant is a suitable person to receive such appointment he shall make the same for a period of one year. (Prior code § 2-4(3))

2.52.050 Appointment—Report of to mayor—Summoning appointee to service.

Upon making such appointment the chief of police shall report the same to the mayor, who may if he deems proper summon such appointee into service as a special policeman. The summons by the mayor may be by endorsement on the appointment or by other informal means of indicating such action. (Prior code § 2-4(4))

2.52.060 Oath.

Special policemen shall take and subscribe the oaths required by Section 12 of the City Charter. (Prior code § 2-4(5))

2.52.070 Authority—Rules and regulations—Compensation.

Special policemen shall have the same authority as members of the regular police force, and shall be subject to such rules and regulations as the chief of police may impose for the proper performance of their duties, unless otherwise ordered by the mayor. They shall receive no pay from the city, shall not be deemed employees, agents or servants

of the city, and shall not be entitled to civil service protection, pensions or benefits of members in the regular police force. (Prior code § 2-4(6))

2.52.080 No vested rights—Suspension or revocation.

Appointment as a special policeman shall confer no vested rights on the person appointed, and such appointment may be suspended or revoked at any time by the chief of police, whenever in his judgment such suspension or revocation shall be advisable in the public interest. (Prior code § 2-4(7))

2.52.090 Reappointment application—Fee.

A special policeman who has been duly appointed and is serving under this section may apply for reappointment. Such application shall be accompanied by payment of a fee of twenty-five dollars, but the information, vouchers, recommendations, fingerprints and statement of the purpose and the necessity of the appointment, need not be required on application for reappointment, unless demanded by the mayor or the chief of police. (Prior code § 2-4(8))

2.52.100 Review by council of chief's actions—Decision to be final.

The action of the chief of police in making, refusing, suspending, revoking or renewing any such appointment shall be subject to review by the city council, on its own motion or on appeal by any person. Upon such review the city council shall make such orders as in its judgment may be advisable in the public interest, and its action shall be final. (Prior code § 2-4(9))

2.52.110 Mayor's powers not restricted.

This chapter is not intended to restrict the powers of the mayor in respect to special police as conferred by the City Charter or by the laws of this state. (Prior code § 2-4(10))

Chapter 2.56

NEPOTISM

Sections:

2.56.010 Certain appointments prohibited.

2.56.020 Removal of persons currently in city service.

2.56.030 Amendment of existing inconsistent ordinances.

2.56.040 Provisions regulating appointments to positions paid for by public funds.

2.56.010 Certain appointments prohibited.

No officer of the city, nor any member of any city board, committee or commission, shall appoint, or vote for, or confirm the appointment to any nonpaid or nonsalaried office, position, employment or duty with the city, of any person related within the second degree by affinity or within the third degree by consanguinity to the person so appointing, voting or confirming, or to any other member of the board, committee or commission of which the person so appointing, voting or confirming may be a member. (Prior code § 2-3.3(a))

2.56.020 Removal of persons currently in city service.

On the effective date of this chapter, if any person is serving in a nonpaid or nonsalaried office, position, employment or duty with the city, and is related within the second degree by affinity or within the third degree by consanguinity to a city officer, or member of a city board, committee or commission who appointed, voted for, or confirmed his appointment, or to any other member of the board, committee or commission of which the individual so appointing, voting or confirming may be a member, such person is automatically removed from his office, position, employment or duty effective immediately. (Prior code § 2-3.3(b))

2.56.030 Amendment of existing inconsistent ordinances.

To the extent that the provisions of any existing city ordinance or ordinances are inconsistent with the provisions of this chapter, such inconsistent provisions are amended to conform herewith. (Prior code § 2-3.3(c))

2.56.040 Provisions regulating appointments to positions paid for by public funds.

Any appointment to an office, position, employment or duty, when the salary, fees or compensation of the appointee will be paid for, directly or indirectly, out of or from public funds or fees of office of any kind or character whatsoever, shall continue to be regulated by the provisions of Art. 5996a, V.A.C.S. (Prior code § 2-3.3(d))

Chapter 2.60

FILING FEES FOR ELECTIVE OFFICE

Sections:

2.60.010 Nonrefundable.

2.60.010 Nonrefundable.

No filing fee paid to the city clerk by or on behalf of a candidate for elective office shall be returned or refunded by the city for any reason whatsoever. (Prior code § 2-3.1)

Chapter 2.64

CITY EMPLOYEES' PENSION FUND

Sections:

2.64.010 Created.

2.64.020 Administration—Board of trustees—Composition.

2.64.030 Board of trustees—Membership.

2.64.040 Board of trustees—Vacancies.

2.64.050 Board of trustees—Quorum.

2.64.060 Board of trustees—Compensation.

2.64.070 Board of trustees—Officers.

2.64.071 Liability insurance and indemnification.

2.64.080 Board of trustees—Administration and disbursement of funds—Meetings—Recordkeeping and reports.

2.64.090 Board of trustees—Rules and regulations.

2.64.100 Pension board—Authority to expend funds.

2.64.110 Board of trustees—Ex officio treasurer—Duties.

2.64.120 Participation in pension system—Civil service employees.

2.64.130 Participation in pension system—City-county health district employees.

2.64.140 Participation in pension system—Certain employees not in the classified service.

2.64.150 Participation in pension system—Library employees.

2.64.160 Participation in pension system—Employees of the city employees' pension fund board of trustees.

2.64.170 Participation in pension system—Coverage of former employees of El Paso Transit Services, Inc.—Special provisions.

2.64.180 Investments.

2.64.190 Contributions.

2.64.200 Retirement pensions.

2.64.205 Proportionate retirement benefits.

2.64.210 Disability pensions.

2.64.220 Repayment of contributions.

2.64.230 Death benefits of widows and children.

2.64.240 Optional retirement benefits.

2.64.250 Minimum payments.

2.64.260 Computation of length of service.

2.64.270 Pension applications—Hearing—Investigations.

2.64.280 Exemptions from debts.

2.64.290 Extent of city's liability.

2.64.300 Adjustment in monthly benefits.

2.64.400 Internal Revenue Code application.

2.64.500 Pick-up of required employee contributions.

2.64.010 Created.

There shall be established by the city a pension fund for both the exclusive benefit of city participants and all participants from any other entity that, with the city's consent, adopts the pension fund and, thereby, becomes an adopting employer of the fund (hereinafter, "other approved employer"). This fund does not include participants who are firefighters or police officers. Such fund shall be known as the City of El Paso Employees Retirement Trust. Further, all references in this chapter to "fund", "plan", "city employees' pension fund", "city employees' pension plan", "pension fund", or "pension plan" shall mean the City of El Paso Employees Retirement Trust. All references to this chapter to participant or fund participant shall mean those persons who participate in the fund pursuant to the provisions of this chapter, and may also be referred to as members of the fund. Additionally, all references in this chapter to

"city" shall mean the City of El Paso, Texas. (Ord. 16474 § 1, 2006: prior code § 17-1)
(Ord. No. 17637, § 1, 8-20-2011; Ord. No. 18089, § 1, 10-29-2013; Ord. No. 18782, § a, 4-17-2018)

2.64.020 Administration—Board of trustees—Composition.

Such fund shall be administered by a board of trustees comprised of two members of the city council, two citizens of the city who are not officers or employees of the city and who have resided in the city for a period of at least two years immediately preceding their appointment, four city employees who are qualified to participate in the fund, and one retired city employee receiving pension benefits from the fund. (Ord. 12084, 1994: Ord. 10527 (part), 1991: prior code § 17-2(a))
(Ord. No. 18782, § b, 4-17-2018)

2.64.030 Board of trustees—Membership.

A. The two members of city council, one of whom may include the mayor, at his or her discretion, shall be appointed by the mayor to serve on the board. The mayor shall also appoint the two citizens who are not officers or employees and the retiree member. The four employees serving on such board shall be elected by a vote of the employees qualified to participate in such fund. Such election shall be held during three working days falling within the last full week of April during times as determined and set by the city clerk. The city manager must give notice of the time and place of the election, including whether such election will be by electronic vote, and must post notices on the bulletin boards in city hall and in all city departments not later than the first day of April immediately preceding the election. If the election is by electronic vote, the city manager must also notify city employees electronically at that time. Candidates for election to the board shall file an application with the city clerk not later than April 10th requesting that their names be placed on the ballot in the manner prescribed by the city clerk with the approval of the city manager. The city clerk shall on the next following business day, certify the names of all of the qualified candidates. A list of the qualified candidates shall be posted by the city clerk on the bulletin boards in city hall, in all city departments and electronically in the manner prescribed by the city clerk not later than April 20th. Voting shall be by electronic voting in accordance with the process and procedure provided by the city clerk or by written ballot and ballot boxes shall be placed at not less than two locations convenient to all members as may be determined by the city clerk. Eligible voters shall be given time to vote during their regular duty hours. All elections shall be determined by a plurality vote. The candidate or candidates receiving the most votes shall fill existing vacancies, with full terms being filled first. The city clerk shall be in charge of conducting such elections. The city clerk is responsible for furnishing, locating and controlling all ballot boxes and no voting box may be moved without the prior written consent of the city clerk, or for election by electronic vote, the city clerk is responsible for managing and overseeing the voting process. If the election is not by electronic vote, the city clerk shall print all ballots and assign personnel necessary for the supervision of the voting. The city clerk must prepare eligible voting lists, count the votes and certify successful candidates. If the number of qualified candidates certified by the city clerk does not exceed the number of vacant positions for which the election would be held, such candidates are deemed to be unopposed, and the city clerk shall as soon as practicable following his certification, declare the unopposed candidates elected, and as necessary assign the terms through the drawing of lots.

B. Appointed Trustees. City council, citizen, or retiree member appointees shall serve for a term of two years. The term of city council, citizen, or retiree member appointees shall commence on the date of appointment by the mayor.

Elected City Employee Trustees. Commencing in April 2018, city employee trustees shall serve four year terms, with the terms being staggered so that two seats are filled by elections held

in odd-numbered years. In order to effectuate the transition to four terms and odd-year elections, the following exceptions will apply: City employee trustees elected in the April 2017 election shall serve a four year term to April 2021, resulting in an increase of one year in the term of these employee trustees. City employee trustees elected in the April 2018 election shall serve a five year term to April 2023, resulting in an increase of one year in the term of these employee trustees. Employee trustees elected in the April 2021 and April 2023 elections, and all employee trustee elections thereafter, shall serve four year terms. The term of the city employee trustees shall commence on the date that the city clerk posts the results of the election.

For board appointments after April 2018, no city council, citizen, or retiree member appointee may hold a board position for more than eight years throughout their lifetime. There shall be no limitation as to the number of years an elected individual may serve on the board.

C. A member of the board who is not present at four regularly-scheduled board meetings in a calendar year shall be automatically removed from serving as a member of the board.

D. All board members shall comply with the education and service requirements of the Texas Pension Review Board and any other official governmental body that regulates the board. A member who fails to comply with such requirements shall be automatically removed as a member of the board.

E. As this election is only open to participants and not the general public, it is not governed by the restrictions on city employees for municipal elections outlined in the City of El Paso's Civil Service Rules. However, the city manager or designee shall have the authority to develop rules related to the posting of material by candidates in common areas of the workplace and in verbal communications when seeking votes from fellow participants. (Ord. 16619 § 1, 2007: Ord. 12774, 1996; Ord. 12729, 1996; Ord. 11593 (part), 1993; Ord. 11330 (part), 1993; Ord. 10527 (part), 1991; Ord. 10028 (part), 1990; Ord. 9188 § 1, 1987; prior code § 17-2(b), (c))
(Ord. No. 17345, § 1, 6-29-2010; Ord. No. 18782, § c—f, 4-17-2018; Ord. No. 19150, § 1, 3-2-2021; Ord. No. 019688, § 1, 11-19-2024)

2.64.040 Board of trustees—Vacancies.

For appointed trustees, the mayor shall be notified by the board chairperson or pension administrator no less than 30 days prior to the expiration of a term of a need to appoint for a new term, or upon the receipt of a notice of resignation from service by a member. The mayor shall make an appointment within 30 days of the date of term expiration or date of resignation, or the position shall be considered vacant.

A trustee position shall he considered vacant if an appointed or elected trustee has not completed the oath of office procedure within 30 days of the commencement of a term, if a trustee has resigned by duly notifying the board, or if a trustee

is removed from the board in accordance with Section 2.64.030(C) or 2.64.030(D) of this chapter.

For any vacant position, the board shall he authorized to adopt a procedure to fill a vacancy for the remainder of the term at its sole discretion, including, but not limited to, re-appointing a trustee whose seat has become vacant or considering an application for re-appointment from a member removed for excessive absences. (Ord. 11330 (part), 1993; prior code § 17-2(d))
(Ord. No. 18782, § g, 4-17-2018)

2.64.050 Board of trustees—Quorum.

Five members of the board shall constitute a quorum, whether or not there are any unfilled vacancies on the board. (Ord. 12257 (Exh. A), 1995: Ord. 10897 (part), 1992; prior code § 17-2(e))

2.64.060 Board of trustees—Compensation.

Members of the board shall serve without compensation. (Prior code § 17-2(f))

2.64.070 Board of trustees—Officers.

The board shall elect a chairperson and vice-chairperson. The chairperson and vice-chairperson shall each have the same vote as any other member. The chief executive of the fund, who shall be designated by the board of trustees, shall act as secretary to the board. (Ord. 12085, 1994: Ord. 10253, 1990: Ord. 9188 § 2, 1987: prior code § 17-2(g))
(Ord. No. 18782, § h, 4-17-2018)

2.64.071 Liability insurance and indemnification.

A. The board of trustees may purchase from assets of the pension fund, from an insurer licensed to do business in this state, one or more insurance policies that provide for the reimbursement of a member, officer or employee of the board for liability imposed as damages caused by, or for costs and expenses incurred by the individual in defense of, an alleged act, error, or omission committed in the individual's capacity as a fiduciary or co-fiduciary of assets of the pension fund. Any such policy may not provide for reimbursement of a member, officer or employee of the board for liability imposed or costs and expenses incurred because of the member's, officer's, or employee's personal dishonesty, fraudulent breach of trust, lack of good faith, intentional fraud or deception, intentional failure to act prudently, willful misconduct or gross negligence.

B. If an insurance policy, as described in subsection A, is unavailable, insufficient or inadequate, the city may pay actual damages awarded, or settlements, against any member, office or employee for liability caused by, and costs and expenses incurred by the individual in defense of an alleged act, error, or omission in the individual's capacity as fiduciary or co-fiduciary of assets of the pension fund. No such payment or reimbursement of damages awarded or settlement shall be approved by the city for liability alleged because of the member's, officer's or employee's personal dishonesty, fraudulent breach of trust, lack of good faith, intentional fraud or deception, intentional failure to act prudently, willful misconduct or gross negligence. The city may approve payment of court costs and attorney's fees awarded and may provide legal counsel by assigning an attorney from the city attorney's office, or by retaining outside counsel.

C. If an insurance policy described in subsection A of this section is unavailable, insufficient, inadequate, or otherwise not in effect, and if the city does not pay damages or settlements as provided in subsection B of this section, the board of trustees may indemnify from the assets of the pension fund, a member, officer, or employee of the board for liability imposed as damages, effect settlements, and pay costs and expenses incurred by the individual in defense of an alleged act, error or omission committed in the individual's capacity as fiduciary or co-fiduciary of assets of the pension fund. No such payment or reimbursement of damages awarded or settlement or other costs and expenses shall be approved by the board of liability alleged because of the member's, officer's or

employee's personal dishonesty, fraudulent breach of trust, lack of good faith, intentional fraud or deception, intentional failure to act prudently, willful misconduct or gross negligence. A determination of indemnification under this subsection must be made by a majority of the board of trustees. If a proposed indemnification is of a board member, the member may not vote on the matter. The board of trustees may adopt a policy establishing a method for presentation, approval, and payment of claims for indemnification under this subsection. (Ord. 11275, 1993)

2.64.080 Board of trustees—Administration and disbursement of funds—Meetings—Recordkeeping and reports.

The board shall have charge of and administer such pension fund, directing the safekeeping or investment thereof, and ordering payments therefrom in accordance with this chapter. It shall hold regular monthly meetings and such special meetings as may be called in accordance with rules to be adopted by it. It shall keep a record of its proceedings and shall promptly after each meeting send to the comptroller of the city the applications for pension fund benefits approved at each meeting of the board signed by the secretary. No money of such fund shall be disbursed for any purpose without a majority of a quorum of board members, which shall be a yea and nay vote entered upon the minutes of the board. The comptroller of the city shall report annually to the city council on the condition of such fund and the receipts and disbursements therefrom. All records of the board shall be open to public inspection. (Ord. 9188 § 3, 1987: prior code § 17-2(h) (part))

2.64.090 Board of trustees—Rules and regulations.

The board of trustees may make such rules, not inconsistent with law or with this chapter, as may be appropriate for the proper performance of its duties. (Prior code § 17-16)

2.64.100 Pension board—Authority to expend funds.

A. The pension board may expend reasonable amounts of the fund for the services of an actuary in advising as to the soundness of the pension plan and in recommending any changes which may be needed therein. Such actuarial evaluation shall be made as of the end of each even-numbered fiscal year and at such other times as may be deemed necessary by the board. Evaluations shall explore the possibility and cost of providing cost-of-living adjustments to retired employees and their survivors, and such other changes as the board may deem appropriate and timely, but no such change shall be made in the pension plan if it will later result in the creation of potential deficiency in the fund.

B. The pension board may expend reasonable amounts of the fund for legal, management, auditing, administrative or other services or support equipment which are reasonably necessary for the sound and efficient operation of the fund and in the discharge of the board's fiduciary duties and responsibilities. (Ord. 10897 (part), 1992: prior code § 172(h) (part))

2.64.110 Board of trustees—Ex officio treasurer—Duties.

The comptroller of the city shall be ex officio treasurer of such fund, and the duties thus imposed upon him shall be additional duties for which he shall be liable under his official oath and bond, but he shall receive no additional compensation therefor. The city comptroller shall keep complete permanent records of all transactions relating to such fund, as may be necessary to carry out the provisions of this chapter. (Ord. 9188 § 4, 1987: prior code § 17-2(i))

2.64.120 Participation in pension system—Civil service employees.

All classified civil service employees shall be fund participants as of the date of their appointment, subject to the conditions specified in the following subsections:

A. Persons eligible to membership in the firemen and policemen pension fund set up by state law shall not be eligible for membership in the city employees' pension fund.

B. Seasonal or temporary employees shall not be eligible. Regular part-time employees may at their option become members of the city employees' pension fund by making the irrevocable election to participate in the fund as provided by and in accordance with the terms set forth in Section 2.64.140.

C. Employees of the city-county health district shall be members of the pension fund as provided in Section 2.64.130. Classified employees who are otherwise eligible to become members of the city employees' pension fund under this section, but whose salaries are paid partially or entirely from county, state or federal grant funds, must become members of the city employees' pension fund on the applicable terms and conditions specified in this section and on the following additional terms and conditions:

1. If the employer's contribution is an allowable expense under the terms of the relevant grant, the employer's contribution must be paid from the relevant grant budget and the employee must be a member of the pension fund.

2. If the employer's contribution is not an allowable expense under the terms of the relevant grant, the employee may at his option become a member of the pension fund, provided that in such case the employee shall make the employer's contribution from the employee's personal funds.

3. In no case shall the employer's contribution be paid from general city revenue not allocated to the relevant grant budget.

4. The terms and conditions of this subsection C. shall be effective only until December 31, 2007.

D. Any person who at the effective date of Ordinance No. 750 was employed under a temporary or provisional appointment, or who had not completed his probationary period under an appointment, and who had been contributing to the pension fund, may have elected to continue to contribute or may have withdrawn his contributions, without interest. If he elected to continue to contribute, he shall be entitled to the same rights as if Ordinance No. 750 had not been passed. If he elected to withdraw his contributions, he shall lose all rights to participation in the fund, unless he afterwards qualifies under this chapter. If he fails to make his election within thirty days after the effective date of Ordinance No. 750, he shall be deemed to have elected to withdraw his contributions, and no further pension deductions shall be made from his paycheck unless he afterwards qualifies.

E. Persons who have signed pension waivers before the effective date of Ordinance No. 750, but from whom contributions to the fund have been accepted, shall have the same right of election as if such waiver had not been signed.

F. After the effective date of Ordinance No. 750, no pension fund deductions shall be made from the paychecks of any person thereafter appointed, unless and until he has been properly certified and appointed; nor shall such deductions be made from the paycheck of any person not eligible for membership in the pension system as herein provided.

G. Some persons given provisional or temporary appointments after April 30, 1952, and afterwards given permanent appointments, lost considerable pension time under subsection F. of this section because they were, without their fault, not appointed as promptly as they should have been. To prevent injustice to such persons, the following options are now extended to every person who comes within all three of the following classes: (i) such person was provisionally or temporarily appointed after April 30, 1952; (ii) such person was

not retired before February 11, 1971; and (iii) such person received a permanent appointment while serving in this provisional or temporary status.

1. If such person retires because of reaching compulsory retirement age, he may, for pension purposes, get credit for such provisional or temporary time by paying into the fund. The interest rate will be seven and one-half percent per annum compounded annually for back contribution payments. The city will make contributions without interest in accordance with the formula in effect at such previous time. If the person wishes to take advantage of the option to get credit for such provisional or temporary time, he shall pay the required amount before he submits his application for retirement to the board.

2. [Intentionally omitted].

3. If such person dies, the pension office shall as soon as possible, notify all persons known to have the right to death benefits. Notice to minors shall be given to the person entitled to receive payments for their benefit. Any person entitled to receive death benefits of the person shall have thirty days after the date of death to make up the back contributions, with like consequence as in the previous case.

H. Any person who has retired from city service under the provisions of this chapter and who is not otherwise excluded or disqualified from the fund, and who is reemployed by the city under circumstances which would permit membership in the fund were it not for the previous retirement, shall be eligible for readmission to the fund under the following conditions:

1. Pension payments from the fund for retirement from city service pursuant to this chapter shall cease immediately upon reemployment.

2. As of the date of reemployment, contributions to the fund shall resume pursuant to this chapter, and service credit shall commence to accumulate for calculation of benefits.

3. A person entitled to benefits under this section who first becomes a fund participant before September 11, 2011, and subsequently retires and is reemployed by the city, shall receive a monthly pension from the pension fund computed according to the formula set forth in Section 2.64.200 where the total complete years and months, and fractional parts of months, of service are used as a single multiplier to compute his monthly pension and shall include such service rendered before the date of his initial retirement and such service rendered after the date of his reemployment until the date of his second and final retirement; provided, that such person reimburses the pension fund for all pension benefits received during such period of separation from city service in one lump sum payment, together with the interest on such total lump sum payment, computed according to the fund's assumed actuarial interest rate, plus any additional liability to the fund computed based on the actuarial tables approved by city council; provided further, that any such person meets the requisites in subsections 1. and 2. A person who is reemployed on and after September 1, 2011, and reimburses the fund pursuant to this section shall give written notice to pension administration office of his intent to make the reimbursement within 90 days after the date of his rehire. Such a person who fails to timely submit the notice of intent to make the reimbursement or fails to timely make the reimbursement shall become a member of the fund pursuant to the provisions of subsection H.4 below.

4. If a person was first a fund participant prior to September 1, 2011 and is reemployed on or after September 1, 2011 and fails to reimburse the pension fund, he shall become a new and separate participant of the fund as applicable to persons first hired on or after September 1, 2011 and be subject to all applicable provisions under this chapter regarding the membership in and entitlement to the benefits under this part of the plan; provided that any such person meets the requisites in subsections 1. and 2. Upon his second and final retirement, he shall receive a monthly pension from the pension fund in such amount that is calculated as provided in this chapter regarding his original monthly pension, and if entitled, benefits from his second, separate participa-

tion in the fund according to the formula set forth in Section 2.64.200. Nothing in this subsection, however, shall be construed to allow the time period of reemployment to be added to the time period of service rendered before the date of his first retirement, and thereby be used as a single multiplier to compute the monthly pension receivable upon his second and final retirement. The prior service credit period and any new service credit period(s) for such participant shall each be administered separately and not combined, and such separate pensions shall be subject to all applicable rules as contained in this chapter regarding each separate pension.

5. A person entitled to benefits under this section who first becomes a fund participant on or after September 1, 2011, and subsequently retires and is reemployed by the city, shall receive a monthly pension from the pension fund computed according to the formula set forth in Section 2.64.200 where the total complete years and months, and fractional parts of months, of service are used as a single multiplier to compute his monthly pension and shall include such service rendered before the date of his initial retirement and such service rendered after the date of his reemployment until the date of his second and final retirement; provided, that such person reimburses the pension fund for all pension benefits received during such period of separation from city service in one lump sum payment, together with the interest on such total lump sum payment, computed according to the pension fund's actuarial reimbursement analysis on the date of reimbursement; provided further, that any such person meets the requisites in subsections 1. and 2. Such a person who reimburses the fund pursuant to this section shall give written notice to the pension administration office of his intent to make the reimbursement within 30 days after the date of his rehire, and shall make the reimbursement within 90 days after the date of his rehire.

Such a person who fails to timely submit the notice of intent to make the reimbursement or fails to timely make the reimbursement shall become a new member of the fund pursuant in the same manner as provided in subsection H.4. above. The prior service credit period and any new service credit period(s) for such participant shall each be administered separately and not combined, and such separate pensions shall be subject to all applicable rules as contained in this chapter regarding each separate pension.

6. A person entitled to benefits under either subsection 3. or 4. of this section who retired immediately prior to being appointed or elected to a position in the unclassified services which is not eligible for membership in the pension fund, who immediately upon leaving that position, is reemployed in the classified services or in a position in the unclassified services which is eligible for membership in the pension fund, shall receive a monthly pension from the pension fund computed according to the formula set forth in Section 2.64.200 where the total complete years and months, and fractional parts of months of service used as a single multiplier to compute his monthly pension shall include such service rendered before the date of his retirement and such service rendered after the date of his reemployment in the classified service until the date of his second and final retirement.

I. Notwithstanding anything contained in this section to the contrary, the city or other approved employer shall not pick-up or pre-tax, pursuant to Section 2.64.401, buy-back contribution payments set forth in this section.

J. Certain emergency medical service personnel who became participants in the City of El Paso Firemen and Policemen Pension Fund shall be considered, for purposes of this plan, as separated from service from their original employment with the City as of the first day of their participation in the City of El Paso Firemen and Policemen Pension Fund. (Ord. 16797 § 2, 2007; Ord. 16619 § 3, 2007; Ord. 16474 § 2, 2006; Ord. 16076 §§ 1—3, 2005; Ord. 13482, 1998; Ord. 13219 (part), 1997; Ord. 12730 § 1, 1996; Ord. 11393 § 1, 1993; Ord.

10897 (part), 1992; Ord. 10096, 1990; Ord. 9867 (part), 1989; Ord. 9030 §§ 1—10, 1987; Ord. 8829, 1986: prior code § 17-3)
(Ord. No. 17637, § 2, 8-30-2011; Ord. No. 18089, § 9, 10-29-2013; Ord. No. 18782, § i, j, 4-17-2018)

2.64.130 Participation in pension system—City-county health district employees.

The provisions of this chapter are extended to all employees of the El Paso City-county health and environmental district and all provisions of this chapter shall be applicable to such employees until December 31, 2007.

For former employees of the El Paso City-county health and environmental district admitted into the city civil service system as city employees (hereafter, "admitted employees"), pursuant to Section 6.13E of the El Paso City Charter, under certain terms and conditions, effective January 1, 2008, all provisions of this chapter shall be applicable to such employees except as follows:

A. Any former employee of the city-county health district who becomes a city employee on January 1, 2008 shall automatically have their pension service credit earned as a district employee transferred to their service as a city employee;

B. Any former district employee who becomes a city employee on January 1, 2008 shall receive credit for pension purposes for unused sick leave earned while a district employee and that remains unused at the time of the employee's retirement date;

C. Any former district employee who becomes a city employee on January 1, 2008 shall have their service credit calculated based upon their combined service earned during their employment with as a district employee and as a city employee;

D. Any former district employee who does not become a city employee shall have the opportunity to apply for a retirement, if vested, or a refund of their contributions, but such application for retirement must be made within thirty days from the date of termination from the district, or December 31, 2007 if district employment is not terminated prior to the district's dissolution;

E. Any former district employee who becomes a city employee on January 1, 2008 shall have the right to pay into the pension fund for any time their salaries are paid partially or entirely from county, state or federal grant funds on the terms and conditions pursuant to Section 2.64.140(E) regardless of whether the employee has been a classified or nonclassified employee at the district or the city;

F. Any former district employee who becomes a city employee on January 1, 2008 shall have the same rights to pay into the pension fund for any time for which the employee was on leave as any other city employee pursuant to Section 2.64.260(B). (Ord. 16797 § 1, 2007: Ord. 16474 § 3, 2006: prior code § 17-4)

2.64.140 Participation in pension system—Certain employees not in the classified service.

Full-time employees who become employed by the city after June 3, 1997, the effective date of this section, and who are not in the classified civil service, including employees employed by the El Paso Water Utilities or the mass transit department board (except police officers, firefighters and officials elected by vote of the people) shall become fund participants. Regular part-time employees and eligible contract employees who elect to participate in the fund, and all employees of any other entity that with the city's consent adopts the pension fund ("other approved employer") may become participants by making an irrevocable election to participate or not participate which shall be made at the time that the person completes the paperwork required at the time of hire by the human resources department, or in the case of an employee of another approved employer, by submitting the irrevocable election to participate or not participate to the board of trustees on or

before the first day of employment with such other approved employer. The following provisions shall additionally apply:

A. Any full-time employee who was eligible to apply for membership in the fund at the time of his original appointment, but who did not submit his application within the ninety-day period after original appointment, and any employee appointed after May 24, 1984 and before June 3, 1997, may submit an application to the board of trustees at any time after original appointment. Applicants who are not grant-funded employees shall pay into the fund, in one lump sum at any time prior to submitting an application for retirement, the amount of contributions which they would have paid had they been members of the fund from the date of their original appointments, or any late date, but not to include any time during breaks in service, plus interest at the rate of seven and one-half percent per annum, compounded annually, on the total amount for the period from the date when the first contribution would have been made to the date when the total is actually paid. Any buy-back shall be made in one lump sum. In the case of nongrant-funded employees, the city will make corresponding contributions without interest, in accordance with the formula in effect at such previous time, provided, however, that such employees must pay interest at the current actuarial rate assumption approved by the board on the employer contributions for the portion of buy-back periods which are longer than five years, as well as the interest on participant contributions; provided, further, however, that this provision relating to paying interest on employer contributions shall not apply to employees in the unclassified service who are eligible for membership in the pension fund at the time Ordinance No. 11593 is adopted. Periods of buy-back on which interest on the employer portion of the contribution is payable shall cover continuous or intermittent service most immediately contiguous to the period of buy-back without payment of interest on the employer portion.

If such option is exercised, all rights or benefits under the fund which depend upon the length of service shall be determined as if the participant had been a member from the date of his original appointment, or such other period for which this option is exercised, excluding any time during a break in service, to which date his contributions have been made good. A participant may not make more than one election to buy-back service credit towards eligibility and benefits under this section.

B. The employee's election to become a participant shall be irrevocable, and his rights and obligations as a participant shall terminate only in accordance with the provisions of this chapter applicable to employees in the classified service as set forth in Section 2.64.120.

C. If the applicant is already a participant on July 25, 1968, the effective date of this section, his service with the city shall for all pension purposes be deemed to begin at the date of his application, unless he exercises the further option set forth in subsection D. of this section; provided, a participant who at a previous time was in the city's classified service and made contributions to the fund shall have the benefit of such previous time when allowable under subsections B. and C. of Section 2.64.260.

D. Persons who are already employed by the city on July 25, 1968, the effective date of this section, and are qualified to become fund participants hereunder shall have the further option of paying into the fund the amount of contributions which they would have paid had they been participants from the date of their appointment. The interest will be seven and one-half percent per annum compounded annually. The city will make corresponding contributions without interest in accordance with the formula in effect at such previous time. Such option must be exercised before receiving any death, disability or pension benefits. If such option is exercised, all rights or benefits under the fund which depend upon length of service shall be determined as if the participant had been a participant from the date of his appointment, to which date his contributions have been made good.

E. Employees who are otherwise eligible to become fund participants under this section, but whose salaries are paid partially or entirely from county, state or federal grant funds, may at their option become fund participants by making application to the board of trustees, only upon the applicable terms and conditions specified in this section and on the following additional terms and conditions:

1. The employer's contribution must be paid from the relevant grant budget, if such an expenditure is allowable under the terms of said grant. If such expenditure is not allowable from the relevant grant budget in effect when the employee exercises this option, the participant shall have the option of making the corresponding employer's contribution without interest from the participant's personal funds. In no case shall the employer's contribution be paid from general city revenue not allocated to the relevant grant budget.

2. Full-time grant funded employees not in the classified services who become fund participants, shall have the further option, at any time prior to submitting an application for retirement, of paying into the fund the amount of contributions which they would have paid had they been members from the date of their original appointments, but not to include any time during a break in service, plus interest at the rate of seven and one-half percent per annum, compounded annually, on the total amount for the period from the date when the first contribution would have been made to the date when the total is actually paid, on the following conditions: the employer's corresponding contributions, which shall be made without interest and in accordance with the formula in effect during the participant's time of previous service, must be made as an allowable expense in the relevant grant budget in effect when the employee exercises this option; provided, however, such participants must pay interest at the current actuarial rate assumption approved by the board on the employer contributions for the period of buy-back which is in excess of five years, as well as the interest on participant contributions; further provided, however, that this provision relating to paying interest on employer contributions shall not apply to such grant-funded employees who are eligible for membership in the pension fund on October 12, 1993, the time the ordinance codified in this subsection is adopted. Any buy-back shall be made in one lump sum. Periods of buy-back on which interest on the employer portion of contribution is payable shall cover continuous or intermittent service most immediately contiguous to the period of buy-back without payment of interest on the employer portion.

F. Notwithstanding anything contained in this section to the contrary, the city or other approved employer shall not pick-up or pre-tax buy-back contribution payments made pursuant to this section.

G. Any eligible contract employee who participates in the fund shall irrevocably elect to become a fund participant, and his rights and obligations as a fund participant shall terminate only in accordance with the provisions of this chapter applicable to employees in the classified civil service as outlined in Section 2.64.120.

H. A person who becomes a fund participant pursuant to Section 2.64.140, shall be subject to Section 2.64.120 H. in its entirety, as germane depending on the applicable facts and circumstances.

I. For purposes of the plan, an eligible contract employee means a contract employee whose contract with the city permits the employee to become a fund participant. (Ord. 16619 § 4, 2007; Ord. 16474 § 4, 2006; Ord. 16076 §§ 4—6, 2005; Ord. 13219 (part), 1997; Ord. 11593 (part), 1993; Ord. 10897 (part), 1992; Ord. 9867 (part), 1989; Ord. 9031 §§ 1—3, 1987: prior code § 17-4.1)
(Ord. No. 17637, § 3, 8-30-2011; Ord. No. 18089, § 9, 10-29-2013)

2.64.150 Participation in pension system—Library employees.

Full-time employees of the El Paso Public Library Association, including those employees whose salaries are paid from state and federal

grant funds when the grant shall also pay for the employer's contribution to this pension fund (these employees shall hereinafter be referred to as grant-funded employees), shall be members of the city employees' pension fund upon the same terms as employees in the classified civil service, and all provisions of this chapter shall be applicable to such employees, except as follows:

A. For all employees of the El Paso Library Association, except grant-funded employees, time employed before July 11, 1968, shall not be included in determining pension rights.

B. For the grant-funded employees, time employed before September 1, 1979, shall not be included in determining pension rights. This provision, however, shall not apply to current grant-funded employees who, as a result of holding nongrant funded positions prior to their present position are currently members of the pension fund. In these instances, subsection A of this section controls. (Prior code § 17-4.2)

2.64.160 Participation in pension system—Employees of the city employees' pension fund board of trustees.

All full-time employees of the city employees' pension fund board of trustees may participate at their option as members of the city employees' pension fund and all provisions of this chapter, including provisions applicable to unclassified employees, shall be applicable to such participating employees of the city employees' pension fund board of trustees, except as follows:

A. Each employee must have written approval from the city employees' pension fund board of trustees as documented in a contract for employment;

B. All employer contributions required by this chapter shall be paid from assets of the city employees' pension fund; and

C. Notwithstanding anything contained in this section to the contrary, the city shall not pick-up or pre-tax, buy-back contribution payments made pursuant to this section. (Ord. 16619 § 5, 2007; Ord. 16076 § 8, 2005; Ord. 12728, 1996)

2.64.170 Participation in pension system—Coverage of former employees of El Paso Transit Services, Inc.—Special provisions.

The provisions of this chapter are extended to all employees of the city whose employment was transferred to the city from El Paso Transit Services, Inc., effective as of January 13, 1980; and all provisions of this chapter shall be applicable to such employees except as follows:

A. Any such transit employee who had reached his sixtieth birthday on or before January 13, 1980, at his option may participate in the fund. The effective date of such participation shall be the effective date of this subsection. However, any employee may elect to make the effective date of his participation the date of his employment with the city rather than the effective date of this subsection. If the employee should so elect, then the employee shall pay contribution at the regular rate beginning as of the effective date of this subsection and also shall pay into the fund, subject to the limitations of Section 415 of the Internal Revenue Code, the amount of the contributions which he would have paid had he been a member from the date of his employment. The city will make corresponding contributions in accordance with the formula in effect at such previous time. Such option must be exercised before receiving death, disability or pension benefits. In either event, all rights or benefits under the fund which depend upon length of service shall be determined as set out in subsection B of this section.

B. In determining the right of any such employee to receive any payment from the pension fund, he shall have credit, in computing his length of service, for the period of time prior to January 13, 1980, that he was employed by El Paso Transit Services, Inc., and its predecessors—Country Club Bus Lines, Inc., El Paso City Lines, Inc., and Lower Valley Bus Lines, Inc.—as determined from the records of the pension plan being maintained on their behalf as of January 12, 1980, by El Paso Transit Services, Inc. Provided any such employee shall have the right to receive the minimum pay-

ments under Section 2.64.250 only if he has completed at least ten years of service after January 13, 1980.

C. In determining the amount of any payment which is payable on behalf of any such employee from the pension fund, the total period of time prior to January 13, 1980, that he was employed by the El Paso Transit Services, Inc., and its predecessors—Country Club Lines, Inc., El Paso City Lines, Inc., and Lower Valley Bus Lines, Inc.—shall be excluded from his length of service. (Ord. 13219 (part), 1997; prior code § 17-4.4)

2.64.180 Investments.

All moneys, securities and other property of the fund shall be kept separate from other funds of the city. All moneys necessary for payment of monthly pension benefits and expenses of administering the fund shall be deposited with the bank depository. The board of trustees may use another third party custodian for purposes of maintaining pension assets.

The board of trustees may invest all or any part of the fund which is in excess of normal requirements for pensions, benefits, expenses and repayment of contributions. In making investments the board shall discharge its duties solely in the interest of the fund's participants and beneficiaries and shall exercise its judgment in accordance with the "prudent person" standard of fiduciary responsibilities set forth in Section 802.203 of Title 8 of the Texas Government Code, adhere to the provisions of the "prudent investor rule" of Chapter 117 of the Texas Trust Code, and shall otherwise comply with all applicable state and federal laws. All investments shall be made in the name of the board of trustees of the fund, or an equivalent designation showing that the investment belongs to the fund.

Provided, however, in the event that the statutory provisions or standards set forth above cease to exist under state law, the board shall continue to invest and manage plan assets in accordance with the "prudent person" standard of fiduciary responsibilities by considering the purposes, terms, distribution requirements and other circumstances of the plan. In satisfying this standard, the board shall exercise reasonable care, skill and caution. Investments shall be diversified so as to minimize the risk of large losses, unless in light of such circumstances, it is clearly prudent not to do so. The board shall manage the plan assets at all times for the exclusive purpose of providing benefits to plan participants, retirees, and beneficiaries, and to defray reasonable expenses of administering the plan. The board shall avoid managing the assets in any way that might reflect, or appear to reflect, a conflict of interest between the plan and any past or present member of the board, members of the city council or city employees, or any employee or agent of the board.

In addition, the board shall continue to adhere to the "prudent investor rule" standard by evaluating individual assets not in isolation but in the context of the plan's portfolio as a whole and as a part of an overall investment strategy having risk and return objectives reasonably suited to the plan, and comply with all applicable state and federal laws. (Ord. 16619 § 6, 2007; Ord. 12953, 1996: Ord. 12727, 1996; Ord. 10897 (part), 1992; prior code § 17-5)
(Ord. No. 17637, § 4, 8-30-2011)

2.64.190 Contributions.

A. Beginning on the first full pay period after May 1, 2007, every person who is a fund participant shall contribute thereto, on a pre-tax basis, 7.75 percent of his salary or wages. The city and all other employers whose employees are permitted to participate in the fund, shall contribute an amount equal to 11.65 percent of the salary or wages of their respective employees who contribute to the fund, subject to subsection A.1. of this section. Provided however, for each of the four consecutive city fiscal years beginning with fiscal year 2012 starting on September 1, 2011, participant contributions of their salaries or wages shall increase annually by 0.30 percent, and the contributions of the city and of other permitted employers shall increase annually by 0.60 percent. Such

increases shall begin with the first full pay period after September 1st of each applicable year, and thereafter, shall remain at the level reached in September 2014.

1. In any case in which the periodic salary or wage of a participant, because of the employee's accident with pay status, is insufficient to allow for deduction from salary or wages of the required participant contribution, or when salary or wages are not subject to deductions, the participant shall be responsible for making payment of the required contribution directly to the city comptroller, not later than one week after the applicable bi-weekly pay day. Failure to make the required contributions will result in loss of pension service credit for the period for which contributions have not been made. Contributions paid later than one week after the applicable pay day will be subject to the addition of interest at the rate of seven and one-half percent per annum compounded annually until such contributions are paid.

B. Contributions to the pension fund shall be based on total salary or wages including any worker's compensation periodic payments received by a participant on leave of absence with pay.

C. Notwithstanding anything contained in this section to the contrary, the city or other approved employer shall not pick-up or pre-tax buy-back contribution payments made pursuant to this section.

D. Notwithstanding any other provisions in the plan, compensation in excess of the limit contained in Internal Revenue Code Section 401(a)(17) or successor statute, if any (or such other amounts as may be determined by taking into account the cost-of-living adjustment provided under Internal Revenue Code Section 401(a)(17) or any successor statute) shall be disregarded for all purposes of calculating a participant's allocations for any plan year.

E. Upon termination of the plan, the participant's contributions as an employee and any vested benefits shall be non-forfeitable, including without limitation employer's contributions.

F. Compensation.

1. Compensation shall mean base salary. Base salary is a fixed amount of money paid to an employee by an employer in return for work performed. Base salary does not include benefits, bonuses or any other potential compensation from an employer. Base salary is paid, most frequently, in a bi-weekly paycheck. In most years, an employee's base salary is paid in twenty-six even paychecks over the course of the year.

2. Gross compensation shall mean base salary as defined in Section 2.64.190 F.1. and will also include overtime, bonuses, and some other non-periodic payments. (Ord. 16619 §§ 7, 8, 2007; Ord. 16474 § 5, 2006; Ord. 16076 § 9, 2005; Ord. 13219 (part), 1997; Ord. 11680 (part), 1993; Ord. 8145 (part), 1984; prior code § 17-6)
(Ord. No. 17637, § 5, 8-30-2011; Ord. No. 18089, §§ 2—4, 10-29-2013; Ord. No. 019420, § 1, 12-13-2022; Ord. No. 019688, § 2, 11-19-2024)

2.64.200 Retirement pensions.

A. Eligibility. Participants in the fund shall be eligible under either subsection 1. or subsection 2., as applicable:

1. Whenever a person who first becomes a fund participant before September 1, 2011 shall have completed ten years of service credit and attained the age of fifty-five years or completed seven years of service credit and attained the age of sixty years, or shall have completed thirty years of service credit regardless of age, such participant shall be entitled to be retired from such service in accordance with the applicable terms and conditions established in this chapter upon application. An application for pension benefits shall be filed no later than thirty days after the effective termination date of such person. Upon a finding of good cause by the board of trustees, the board may extend the deadline for filing such application. The term good cause shall mean that the failure of the applicant to timely file such application was the result of circumstances beyond the applicant's control, rather than intentional, or the result of conscious indifference. The burden of

establishing good cause shall always be upon the applicant, and good cause must be shown in the record.

2. Whenever a person who first becomes a fund participant on or after September 1, 2011 shall have completed seven years of service credit and attained the age of sixty years, or shall have completed thirty-five years of service credit regardless of age, such employee shall be entitled to be retired from such service in accordance with the applicable terms and conditions established in this chapter upon application. An application for pension benefits shall be filed no later than thirty days after the effective termination date of such person. Upon a finding of good cause by the board of trustees, the board may extend the deadline for filing such application. The term good cause shall mean that the failure of the applicant to timely file such application was the result of circumstances beyond the applicant's control, rather than intentional, or the result of conscious indifference. The burden of establishing good cause shall always be upon the applicant, and good cause must be shown in the record.

3. The phrase "effective termination date" shall mean "the date when a participant separates from service from the city, whether voluntarily or involuntarily, whereby pension contributions may no longer be made for the benefit of the participant by either the participant or the city."

B. Benefits. Participants in the Fund, shall, depending upon the applicable facts and circumstances, receive benefits under either subsection 1. or subsection 2., or both, as provided by the applicable provisions of this chapter, and as further provided in subsections 3. and 4.:

1. Effective September 1, 1984, any person so retired, who was first a fund participant before September I, 2011, shall be entitled to receive a monthly pension from the fund in an amount equal to: (1) two and one- half percent of the monthly average of the pensionable gross compensation received by the participant during the three years immediately preceding retirement; or (2) two and one-half percent of the monthly average of the base salary received by the participant during the year immediately preceding retirement; or (3) two and one-half percent of the monthly base salary the participant is entitled to receive for the month immediately preceding retirement, whichever is greater, multiplied by the number of completed years of service, plus 0.2083 of one percent of such average or entitled monthly pay for each complete or fractional part of a month of service which is not part of a complete year, or

2. Any person so retired who was first a fund participant on or after September 1, 2011 shall be entitled to receive a monthly pension from the fund in an amount equal to two and one-fourth percent of the monthly average of the pensionable gross compensation received by the participant during the last three years immediately preceding retirement (for purposes of 2.64.200(F), the last three years immediately preceding retirement shall mean the last three years immediately preceding retirement which the participant received service credit), multiplied by the number of completed years of service credit, plus 0.1875 of one percent of such average monthly pay for each complete or fractional part of a month which is not part of a complete year; provided, however, that under no circumstance shall said monthly pension exceed ninety percent of the participant's three year average monthly pensionable gross compensation, and

3. Unless otherwise approved by the board of trustees, the monthly pension of a participant who was first a participant before September 1, 2011 will be computed on the basis of the monthly base salary the participant is entitled to receive for the month immediately prior to retirement.

4. Pensionable gross compensation received by a participant that exceed the amount he is entitled to be paid in the permanent position to which he has been regularly appointed, shall be excluded from the computation of monthly pension benefits.

5. For the purposes of this plan, the term "pensionable gross compensation" shall refer to the gross income paid by the city to the participant and shall include service time increases, sick leave

pay taken in the normal course of employment, vacation leave pay taken in the normal course of employment, vacation leave pay taken in the normal course of employment, shift differential, and mandatory overtime that is part of the participant's fixed, periodic compensation. Payments not considered pensionable gross compensation are:

a. Except those items listed in the first sentence of this section, including, without limitation, salary increases, and compensation determined by the city to have been paid to a participant solely for the purpose of increasing a participant's retirement benefit under the plan.

b. Compensation that had previously been provided in kind to the participant by the city or paid directly by the city to a third party other than the plan for the benefit of the participant.

c. Any one-time or ad hoc payments made to a participant.

d. Severance or any other payment that is granted or awarded to a participant in connection with or in anticipation of a separation from employment.

e. Payments for unused vacation, annual leave, personal leave, sick leave, or compensatory time off, however denominated, paid in a lump sum, regardless of when reported or paid.

f. Any employer-provided allowance, reimbursement, or payment, including, but not limited to, one made for housing, vehicle, or uniforms, except for incentive payments that are permanent and included in a participant's gross compensation by the city.

g. Employer contributions to the plan.

h. Any bonuses paid.

i. Any compensation paid as a result of an interim promotion or provisional pay differential that is not made permanent by the city.

j. Any compensation paid by the city after separation from service of the participant, including, without limitation, any payments made to a participant to settle a claim with the plan and any third party costs paid by the city on behalf of the participant.

k. Any other form of compensation that would not be considerable pensionable gross compensation under applicable state or federal law.

C. The city council may from time to time adopt by resolution early and deferred retirement tables for participants, providing schedules deemed by the council to be actuarially sound under which a participant who has attained the age as set forth in said tables may retire, and either receive a retirement pension immediately or at a later date, based on a percentage of his pay as provided in subsection B. of this section, according to the length of his service at that time, provided however, such an early or deferred retirement for a participant who first became a fund participant before September 1, 2011 shall begin no earlier than age 40 if such person has at least ten years of pension service credit or begin no earlier than age 45 if such person has at least seven years of pension service credit, and such an early or deferred retirement for a participant who first became a fund participant on or after September 1, 2011 shall begin no earlier than age 45 if such person has at least seven years of pension service credit. If such schedules are adopted, any participant whose age and length of service are included in the tables shall be allowed to retire and to receive, either immediately or at a later date, a retirement pension in accordance therewith, in lieu of repayment of his contributions, provided however, such an early or deferred retirement for a participant who first became a fund participant before September 1, 2011 shall begin no earlier than age 40 if such person has at least ten years of pension service credit or begin no earlier than age 45 if such person has at least seven years of pension service credit, and such an early or deferred retirement for a participant who first became a fund participant on or after September 1, 2011 shall begin no earlier than age 45 if such person has at least seven years of pension service credit. The provisions for minimum payments under Section 2.64.250 shall have no application to benefits paid under early or deferred retirement tables. Upon the death of a participant retired for early retirement and receiving a retire-

ment pension, any death benefits to which his survivors are entitled under this chapter, shall be computed on the basis of the appropriate percentage of retirement benefit which he was receiving. Upon the death of a participant on deferred retirement and not yet receiving a retirement pension, the following choices shall be available to the survivors:

1. The death allowance may begin immediately and the death benefits shall be computed on the basis of the appropriate percentage of retirement benefit he would have been entitled to receive if he had retired and received an allowance as of the date of his death.

2. The death allowance may begin at a later date (not later than the date the participant would have attained age fifty-five years for the persons who first were fund participants before September 1, 2011, or age sixty years for the persons who first were fund participants on or after September 1, 2011) and the death benefit shall be computed on the basis of the appropriate percentage of retirement benefit he would have been entitled to receive if he had retired and received an allowance as of the above later date.

3. The survivors may choose, subject to the agreement of the pension board, to receive a refund of the participant's contributions. If at the time of death of a participant on deferred retirement, there are no survivors entitled to a death allowance, his contributions shall be refunded to his estate.

4. If the survivors are unmarried children under nineteen years of age, the choice of one of the three preceding options shall be made by their legally appointed guardian, or if no guardian has been appointed, the person having custody of the unmarried child or children under nineteen and subject to the approval of the pension board.

5. A participant may elect to receive early or deferred pension benefits and shall be entitled to select an optional retirement settlement as provided in Section 2.64.240. Such an election and selection shall be made at the time the participant applies for a pension, and neither the election nor selection of optional retirement settlement may be changed after an application for a pension has been approved by the board.

D. At the time the salary ceiling on which contributions and benefits were computed was raised from two hundred dollars a month to four hundred dollars a month, certain participants elected to remain under the two hundred dollar ceiling, thus contributing to and receiving from the fund at a rate of one-half the rate applicable to participants generally. In the case of those participants who so elected, the contributions to the fund (both by the city and by the participant) and the benefits payable shall be computed as if the participant's salary or wages were one-half the actual amount.

E. A participant who is otherwise entitled to retire from service and who is terminated for cause may, if such termination is appealed within the time period allowed for such an appeal and in accordance with applicable procedures for such appeals, submit an application for retirement during the period allowed for submitting such appeals. Such application for retirement shall be held in abeyance subject to the outcome of the appeal. In the absence of such an appeal, and upon a showing of good cause as provided in subsection A. of this section, such participant shall file an application for pension benefits no later than thirty days after the effective date of termination. Any participant who has been terminated for cause during the two-year period prior to February 11, 1997, the adoption of this revised subsection, and at a time when such participant was otherwise entitled to pension benefits and who did not appeal such termination, may submit an application for pension benefits. Such application shall be filed no later than thirty days from February 11, 1997, the effective date of this revised subsection.

F. Retirement pension of regular part-time employees who elect to participate in the fund will be calculated as follows:

1. For purposes of calculating benefits earned from regular part-time service, service credit shall be accrued as follows: for each year worked, or

part thereof, the number of hours actually worked will be aggregated and expressed as a ratio of hours worked to a base of full-time equivalent hours over the same period. Service credit so earned shall then be multiplied by two and one-half percent for the persons who first became fund participants before September 1, 2011, or two and one-fourth for the persons who first became fund participants on or after September 1, 2011, of a full-time equivalent yearly final base salary to arrive at the benefit due.

2. Pension service credit time towards eligibility will accrue on a calendar basis, provided the part-time employee has worked a minimum of one thousand hours per year. Part-time service credit towards eligibility will accrue on a pro-rata basis for employees working less than one thousand hours per year.

3. For purposes of benefit calculations for part-time employees, "final pay" shall mean the full-time equivalent base pay for part-time employment, but shall otherwise be defined as currently provided in this chapter.

4. For calculating minimum pensions due in cases of accidental death or job-related disability, the minimum pension will be defined as a pro-rata share of the full-time hours worked in the twelve months preceding death or injury. However, any participant in full-time status at the time of the death or injury shall be entitled to full-time minimum pension, past service history notwithstanding.

5. Minimum regular pension benefits shall be construed as a pro-rata share of the full-time minimum pension wherein the proration will represent the estimated proportion of full-time hours worked over the service life of the retiree.

6. Persons who elect to participate in the pension fund shall have the further option of paying into the fund, in one lump sum, at any time prior to submitting an application for retirement, the amount of contributions which they would have paid, had they been members of the fund from the date of their original appointments, or any late date, but not to include any time during breaks in service, plus interest at the rate of seven and one-half percent per annum, compounded annually, on the total amount for the period from the date when the first contribution would have been made to the date when the total is actually paid. Any buy-back shall be made in one lump sum. In the case of nongrant-funded employees, the city will make corresponding contributions, without interest, in accordance with the formula in effect at such previous time; provided, however, that such participants must pay interest at the current actuarial rate assumption approved by the board on the employer contributions for the portion of buy-back periods which are longer than five years, as well as the interest on participant contributions; further provided, however, that this provision relating to paying interest on employer contributions shall not apply to persons who are eligible for membership on October 12, 1993, the time the ordinance codified in this section is adopted. Periods of buy-back without interest on the employer portion of contribution shall cover the first continuous or intermittent service most immediately contiguous to the date of the buy-back. Periods of buy-back on which interest on the employer portion of contribution is payable shall cover continuous or intermittent service most immediately contiguous to the period of buy-back without payment of interest on the employer portion. Notwithstanding anything contained in this subsection to the contrary, the city or other approved employer shall not pick-up or pre-tax, pursuant to Section 2.64.500, buy-back contribution payments made pursuant to this subsection.

7. A retiree of the pension fund who is rehired as a regular part-time employee by the city and elects to participate in the pension fund, shall have his final pension benefit calculated in two (or more) distinct parts representing the two (or more) distinct periods of service, and as further provided in Section 2.64.120 H. of this Code, as such subsections are germane depending on the applicable facts and circumstances.

G. Limit of benefits.

1. Notwithstanding any other provision herein, the annual benefit provided with respect to

any plan participant who retires and is eligible to receive benefits may not exceed the benefits allowed for a governmental defined benefit plan qualified under Internal Revenue Code Section 401 or its successor statute and such limit shall increase each year to the extent permitted by annual cost-of-living increase adjustments announced by the Secretary of the Treasury under Internal Revenue Code Section 415(d) or a successor statute. Such increased benefit limits shall apply to participants who have retired and are eligible to receive benefits, including participants who have commenced to receive benefits, before the effective date of the adjustment.

2. If the combined benefits from two or more defined benefit plans sponsored by the city would otherwise exceed the limits imposed by subparagraph 1. and Internal Revenue Code Section 415(b) or successor statutes, the benefits provided under this plan shall be reduced to the extent necessary to comply with those requirements. (Ord. 16619 §§ 9—11, 2007; Ord. 16076 § 10, 2005; Ord. 16075, 2005; Ord. 13219 (part), 1997; Ord. 13086 §§ 1, 2, 1997; Ord. 11680 (part), 1993; Ord. 11593 (part), 1993; Ord. 9684, 1989; Ord. 8348, 1985; Ord. 8145 (part), 1984; prior code § 17-7)
(Ord. No. 17637, § 6, 8-30-2011; Ord. No. 18089, §§ 6, 7, 9, 10-29-2013; Ord. No. 18782, § k, 4-17-2018; Ord. No. 019688, § 2, 11-19-2024)

2.64.205 Proportionate retirement benefits.

When an employee who is a member of the city employees' pension fund joins another city-sponsored pension fund which has elected to participate in a proportionate retirement program pursuant to Chapter 803 of the Texas Government Code (Chapter 803), the applicable benefit payable from the city employees' pension fund will be based upon the service credit earned while the employee contributed to the city employees' pension fund. The benefits available to those employees who no longer participate by contributing to the city employees' pension fund are generally the same as those provided to employees who do not participate in more than one pension fund participating in a proportionate retirement program. The proportionate retirement benefits available to such employees shall be the same as those retirement benefits available to employees who do not stop making pension contributions to the city employees' pension fund.

A. The following rules shall apply for the purpose of calculating proportionate retirement benefits under Chapter 803 for those city employees who transfer to another city-sponsored pension fund which has adopted Chapter 803:

1. A person who becomes ineligible for membership in the city employees' pension fund due to a transfer to a job while in the city employment and who desires to maintain membership in the city employees' pension fund will be allowed to continue membership in the city employees' pension fund for the limited purpose of deferring benefits under the city employees' pension fund.

2. The amount of sick leave which may be used for the purpose of calculating credited service shall be the accumulated amount on the day that the employee stops making pension contributions to the city employees' pension fund.

3. The final pay for purposes of retirement calculations will be calculated under either subsection A. or B., as applicable:

a. For employees who first became fund participants before September I, 20 II, the final pay for purposes of retirement calculations will be the monthly average of the pensionable gross compensation received by the employee for the last three years prior to the date that the employee stops making pension contributions to the city employees' pension fund, or the monthly average of the base salary received by the employee for the year immediately prior to the date that the employee stops making pension contributions to the city employees' pension fund, or the monthly base salary pay the employee is entitled to receive for the month immediately prior to the date that the employee stops making pension contributions to the city employees' pension fund, whichever is greater, or

b. For employees who first became fund participants on or after September 1, 2011, the final pay for purposes of retirement calculations shall be the monthly average of the pensionable gross compensation received by the participant during the last three years immediately preceding retirement (for purposes of 2.64.00(F)), the last three years immediately preceding retirement shall mean the last three years immediately preceding retirement which the participant received service credit); provided, however, that under no circumstance shall said final pay exceed ninety percent of the participant's average monthly gross pay.

4. For the sole purpose of allowing refunds any employee who begins participation in another city sponsored pension fund may make a one-time election to receive a refund from the city employees' pension fund for contributions made to the city employees' pension fund if such election is made within thirty days after contributions to the city employees' pension fund have stopped. Such election is irrevocable. A person who receives a refund of pension contributions ceases to be a participant in the city employees' pension fund upon receipt of such refund, and forfeits all rights to a proportionate retirement pension from the city employees' pension fund under Chapter 803.

5. No employee who transfers to another city sponsored pension fund which participates in a proportionate retirement program shall be allowed to increase his length of service in the city employees' pension fund by paying back into the fund any amount unless the buyback is made by the time the employee's contributions to the city employees' pension fund stop.

6. Any employee who participates in a proportionate share retirement program must make an application for any type of disability retirement before contributions to the city employees' pension fund stop.

B. Should the city employees' pension fund not elect to participate in a proportionate share retirement program as defined in Chapter 803 of the Texas Government Code by August 31, 2000 then this section shall automatically be repealed as of September 1, 2000. (Ord. 14410, 2000)
(Ord. No. 17637, § 7, 8-30-2011; Ord. No. 18089, § 7, 10-29-2013)

2.64.210 Disability pensions.

For purposes of this chapter, "disability" shall mean the condition of a significant impairment of physical, neurological, cognitive, or ambulatory abilities, or combination thereof, to such an extent that a participant is unable to perform a job for which he is qualified by training and experience, and where medical improvement of the impairment or combination thereof does not have medically reasonable prognosis for improvement under the conditions at the time of the application for disability.

A. Whenever a participant (as limited by Section 2.64.120) shall become disabled, through no fault of his own, as the result of a job-related injury or cause, be entitled to be retired from his employment and to receive a pension in the same amount as specified in Section 2.64.200, the amount of which shall be determined by and based on whether the person was first a fund participant before September 1, 2011, or first a fond participant on or after September 1, 2011. This subsection shall apply only to original applications filed on or after February 4, 1992.

B. Whenever a participant (as limited by Section 2.64.120) shall have completed seven years of pension credited service with the city or other approved employer and shall become-disabled, through no fault of his own, from any cause not related to his job with the city or other approved employer, and shall make written application therefor, within 30 days of his termination date, approved by the board of trustees, he shall-be entitled to be retired from his employment and to receive a pension in the same amount as specified in Section 2.64.200. If such disability occurs before completion of seven years of pension credited service, the participant so disabled shall be entitled to receive a refund of the amount he paid into the fond, in accordance with Section 2.64.200. This subsection shall apply only to original applications filed on or after February 4, 1992.

C. No participant shall become entitled to receive a disability pension benefit under this section if the disability is a result of:

1. Excessive and habitual use by the participant of illegal drugs, intoxicants or narcotics;

2. Injury or disease sustained by the participant while willfully and illegally participating in fights, riots, civil insurrections or while committing a felony;

3. Intentionally deleted per amendment

4. Injury or disease sustained by the participant diagnosed or discovered subsequent to the date his employment has terminated;

5. Intentionally deleted per amendment

6. Any attempt at suicide while sane or insane, or by injuries intentionally self-inflicted.

D. The participant must provide medical evidence, to include a physician's opinion, to support the application. The board may require additional medical examination and opinion by a physician selected by the board. Physicians conducting examinations or submitting opinions in connection with a disability pension application must be licensed to practice medicine in the United States. The board's determination of fact as to disability shall be final and conclusive on all parties.

E. Disability pension benefits approved under this section shall continue for as long as the individual concerned remains disabled as defined in this section, subject to subsection F. of this section. A disabled individual may be required to submit verification, on a prescribed schedule, that he is still disabled as defined in this section.

F. If a disabled individual who is receiving a disability pension benefit pursuant to this section is gainfully employed while receiving such disability benefit, his disability pension benefit may be reduced or terminated as follows: If the salary or wage from employment plus the disability pension benefit exceed the salary he was receiving as a city employee or employee of another approved employer, the disability pension benefit shall be reduced to such a level that the total income from employment plus the disability pension benefit does not exceed the salary he was receiving as a city employee or employee of another approved employer. If the salary from employment exceeds the salary he was receiving as a city employee or employee of another approved employer, the disability pension benefit will be discontinued. A disabled individual receiving a pension benefit under this section may be required to provide documentation of additional earned income as deemed necessary by the board. Failure to provide such documentation when requested by the board shall be cause for discontinuing the disability pension benefit. In the event that an individual's disability pension benefit is discontinued due to gainful employment, as provided herein, he will receive the excess, if any, of his contributions over the benefit payments he has received and he shall not be entitled to future benefits under the plan. All decisions of the board regarding reduction or termination of benefit payments shall be final and binding on the parties.

G. An application for a disability pension under Section 2.64.210 shall be filed within thirty days of the participant's termination date. The phrase "termination date" shall mean the date when a participant separates from service from the city, whether voluntary or involuntary, whereby pension contributions may no longer be made for the benefit of the participant by either the participant or the city. (Ord. 11261, 1992; Ord. 10897 (part), 1992: prior code § 17-8)
(Ord. No. 17637, § 8, 8-30-2011; Ord. No. 18782, § l—n, 4-17-2018; Ord. No. 019688, § 5, 11-19-2024)

2.64.220 Repayment of contributions.

A. Participant permanently separated after February 28, 1955. Any participant who is permanently separated from the city service after February 28, 1955, without becoming entitled to benefits under the pension system shall be entitled to repayment of all contributions made by him to the pension fund. Whenever a plan participant who is eligible or not eligible for retirement from city service under either section 2.64.200 A.1. or 2.

decides to retire from service, such plan participant may take a lump sum refund of contributions.

B. Sections 2.64.230 E. and 2.64.26 C. not repealed. Nothing herein shall repeal or affect the provisions of Section 2.64.230 E., relating to repayment of contributions in case of death, or Section 2.64.260 C., relating to repayment of the fund of withdrawn contributions after a service break.

C. Separation before March 1, 1955 and reemployment. A participant who was separated from the city service before March 1, 1955, thereby losing the contributions made by him to the fund, and who was later reemployed by the city and again separated from the service when contributions were refundable, shall not be entitled to refund of those contributions which he made to the fund prior to March 1, 1955, unless the interval between his periods of employment was less than two years.

D. Refund by secretary of board. When a person is entitled to refund of contributions under this section, the secretary of the board of trustees may authorize such refund without referring the matter to the board if the person's right to the refund is certified by the human resources director. The secretary may, however, if in doubt as to the person's rights, order the application for refund referred to the board.

E. Other refunds by board. All other applications for refund shall be referred to the board.

F. Employee who dies without leaving widow or child under nineteen. When a participant dies after the effective date of this amendment and before becoming entitled to benefits under the pension system, and does not leave a widow or any child under nineteen years of age, the executor or administrator of his estate shall be entitled, upon application therefor, to repayment of all contributions made by the participant to the pension fund. Provided, if such participant leaves a child or children under nineteen years of age, entitled to benefits under Section 2.64.230, such benefits shall be paid to the child or children, and the total amount thereof deducted from the total of his contributions, and the balance then paid to his executor or administrator. Payments made to an executor or administrator under this subsection G. shall be subject to all the limitations and other provisions applicable to refund of contributions of employees permanently separated from the city service or service with another approved employer, as set forth in the other subsections of this section.

To facilitate the repayment of contributions and avoid the expense of administration on the employee's estate, a participant may file with the human resources director a written authorization designating a person to whom his contributions shall be repaid (when repayment is authorized under this chapter) if the participant dies without leaving a widow or a child under nineteen and if within thirty days after his death no application has been filed for probate of a will or appointment of an administrator. The person so designated must be over twenty-one years of age. The participant may, by written direction filed with the human resources director, withdraw or change such designation without the consent of the person designated.

If a participant who could have filed such designation has not done so, or if the person designated cannot be found or has become non sui juris, and there is no widow or child under nineteen, surviving and no application has been made within thirty days after the participant's death for probate of a will or appointment of an administrator, the board of trustees in its discretion and upon its finding that administration on the estate would be unduly expensive in comparison with the amount to be repaid, may authorize the repayment of such contributions, or an appropriate part thereof, to any person or persons who show they have a valid claim against the estate for funeral expenses or expenses of the participant's last illness, and who agree to indemnify the fund against any claims which may be made to such refund by orders.

G. Interest on participant contributions refunded. No interest will be paid on contributions refunded if the participant has not completed either five years of service credit for a person who was first a fund participant before September 1, 2011, or seven years of service credit for a participant who was first a fund participant on or after September 1, 2011 with the city or with another approved employer. If the participant who has completed the requisite number of years of service credit as set forth immediately above dies or is permanently separated from the service, under circumstances entitling him, his widow or children, or his estate to refund of his contributions, the refund will be increased by the applicable amount of interest compounded annually on all his contributions for the period that such contributions have remained in the fund: either five and one-half percent for persons who first became fund participants before September 1, 2011, or three percent for persons who first became fund participants or after September 1, 2011.

H. As used in this section, the term "contributions" shall exclude any interest paid by a participant on any buy-back contribution payments made under the provisions of this Code, and under no circumstances shall a participant be entitled to a refund of such interest nor be entitled to receive any portion of the employer's contributions.

I. Direct rollovers.

1. A beneficiary may elect, at the time and in the manner prescribed by the board of trustees, to have any portion of an eligible rollover distribution (as defined in Treasury Regulation section 1.402(c)-2, successor statute, or other applicable sections or regulations) paid directly to an eligible retirement plan (as defined in Treasury Regulation section 1.402(c)-2 Q&A(2), successor statute, or other applicable sections and regulations) specified by the beneficiary in a direct rollover. For purposes of this subsection the relevant rules and regulations under the Internal Revenue Code and Treasury Regulations governing eligible rollover distribution shall apply, including without limitation Internal Revenue Code sections 402(c), 401(a), 408(a)—(b), 403(a), 457(b), and their successor statutes.

2. For purposes of this section dealing with eligible rollover or distributions, a "beneficiary" shall include an employee or former employee. In addition, the employee's or former employee's surviving spouse or designated beneficiary ("Non-Spouse Designated Beneficiary") is a beneficiary, and the employee's or former employee's spouse or former spouse who is the alternate payee under a qualified domestic relations order, as defined in Internal Revenue Code Section 414(p) or successor statute, is a beneficiary with regard to the interest of the spouse or the former spouse. (Ord. 16619 § 12, 2007; Ord. 10128, 1990; Ord. 8200, 1984; Ord. 8145 (part), 1984; prior code § 17-9) (Ord. No. 17637, § 9, 8-30-2011; Ord. No. 18089, §§ 5, 8, 10-29-2013)

2.64.230 Death benefits of widows and children.

In case of the death of any participant, whether death occurs before or after retirement of such participant, his widow and children shall be entitled to receive monthly death benefits from such fund, the amount of which shall be determined by and based on whether the person was first a fund participant before September 1, 2011 or was first a fund participant on or after September 1, 2011, in accordance with the following schedules:

A. If the participant leaves a widow but no children, the widow shall receive two-thirds of the amount such participant, if retired, was receiving at the time of his death; or, if such participant was not retired at the time of his death, either (1) two-thirds of the amount he would have been entitled to receive if he had been retired as of the date of his death, or (2) the amount he would have been entitled to receive at the time of his death if he had selected optional retirement settlement (2) prior to death, whichever of the latter two amounts is the greater.

B. If such participant leaves a child or children under nineteen years of age, but leaves no

widow, such child or children under nineteen years of age shall receive an amount equal to that hereinabove provided for a widow with no children, such amount to be equally divided among such children under nineteen years of age, if there be more than one. Such payments shall continue in the same total amount until all such children die, marry or attain the age of nineteen years, whichever shall happen first, but only those who are still under nineteen years of age and married shall participate therein, except:

1. If such children or child is incapacitated because of mental or physical disability, payments shall continue in the same total amount until such children or child dies, marries or recovers, whichever happens first.

2. An incapacitated child or children who are over nineteen years of age at the time of death of the employee shall receive an amount equal to that hereinabove provided for a child or children under nineteen years of age with no widow until such children or child dies, marries or recovers, whichever happens first.

3. The incapacitation shall be determined by the board, and payments may be discontinued at any time by the board on proof that the child or children are not incapacitated. The board's determination as to incapacitation shall be final and conclusive on all parties.

C. If such participant leaves a widow and a child or children under nineteen years of age, the widow shall receive for the joint benefit of herself and such child or children an amount equal to the full pension received by such participant, if retired, or, if he was not retired, the amount he would have been entitled to receive at the date of his death. Such payments shall continue until all of such children die, marry or attain the age of nineteen years, whichever shall happen first; and thereafter the widow shall receive the amount hereinabove provided for a widow with no children. If the widow dies the child or children under nineteen years of age and unmarried shall, thereafter, receive the amount hereinabove provided for a child or children with no widow.

1. If such children or child is incapacitated because of mental or physical disability, payments shall continue in the same total amount until such children or child dies, marries or recovers, whichever happens first.

2. An incapacitated child or children who are over nineteen years of age at the time of death of the widow shall receive an amount equal to that hereinabove provided for a child or children under nineteen years of age with no widow until such children or child dies, marries or recovers, whichever happens first.

3. The incapacitation shall be determined by the board, and payments may be discontinued at any time by the board on proof that the child or children are not incapacitated. The board's determination as to incapacitation shall be final and conclusive on all parties.

D. If the participant leaves a widow and a child or children under nineteen years of age who are not the child or children of such widow, the board of trustees may in its discretion order the death benefits for widow and children to be paid to the widow for the benefit of herself and such child or children; or the board may order one-half of such amount to be paid to the widow for her own benefit and one-half to be paid to such child or children.

E. If a participant who is working at the time that he dies, leaving a widow, and a child or children under nineteen years of age, or either thereof, and such deceased employee, regardless of age at the time of death, shall have completed seven years of pension credited service with the city or other approved employer at the time of death, his widow and child or children under nineteen years of age, or either of them, shall be entitled to receive monthly pension benefits from the pension fund as provided in this section. The widow, and/or child or children under nineteen years of age, of such deceased participant, who elect to receive a refund of such deceased participant's contributions, shall have two years from the date of receipt of said refunds, to repay the refund with interest at the rate of seven and one-half percent per annum and elect to receive survivor benefits. A widow, and/or child or children under nineteen years of

age, of such deceased participant, who elect to repay such refund shall, upon payment if such refund, be entitled to survivor benefits as provided in this section as of the date of such participant's death.

1. If a participant who has contributed to the fund shall die leaving a widow, and a child or children under nineteen years of age, or either thereof, and such deceased participant has not completed seven years of service credit with the city at the time of death, the amount which such deceased participant has himself contributed to such fund shall be paid to such survivors. Payments shall be divided between the survivors or paid to the widow or some other persons for the benefit of the children, in like manner as the case of death benefits.

F. The word "widow" as used in this chapter includes "widower" and means a participant's surviving spouse.

G. A stepchild of a participant shall be entitled to the same benefits as a child, if at the time such rights accrued the stepchild was a member of the participant's family and supported by him.

H. No person shall be deemed a "widow" within the meaning of this chapter if the marriage of such person with the participant was contracted after the participant's retirement.

I. The right of a widow to benefit under this chapter shall terminate upon her death or remarriage. The right of any child shall terminate upon death, marriage or attainment of the age of nineteen years, whichever shall happen first, except the right of any child who is incapacitated because of mental or physical disability shall terminate upon death, marriage or recovery, whichever happens first. Dissolution of the marriage of a child shall not restore such child's right to participate.

J. Whenever payments are made hereunder to a widow for the sole benefit of a child or children, if the board of trustees finds that such payments are not being used for the sole benefit of such child or children, it may order such payments to be made to the child or children instead of to the widow. Whenever payments are made hereunder to a widow for the joint benefit of herself and a child or children, if the board of trustees finds that such payments are not being reasonably used for such joint purposes, it may order one-half of such payment to be made to the widow and one-half to the child or children.

K. Whenever any payment is made under this chapter to a child or children, otherwise than to a widow for their benefit, it shall be made to the legally appointed guardian of the child or children, if there be one; and if there be no legally appointed guardian such payment may be made to any person standing in loco parentis to such child or children, as found from time to time by the board of trustees.

L. In any case in which the participant dies as a result of an accident which occurs in the course of his employment with the city, the benefits payable under this section to the surviving spouse or children or both, shall be the greater of five hundred fifty dollars per month or the amount which they would have been entitled to receive if the participant had been in the city service or the service of another approved employer, thirty years and had reached the age of seventy which amount shall be determined by and based on whether the person was first a fund participant before September 1, 2011 or first a fund participant on or after September 1, 2011 and as further provided in this chapter.

M. For purposes of this section, a decree or order by a court with proper jurisdiction to hear cases regarding the incapacitation of an individual, that declares an individual described in this section as being incapacitated and that appoints a guardian of said individual, shall serve as evidence sufficient to prove incapacitation. However, in the absence of such decree or order, the board may consider any evidence made available to it in order to determine whether an individual is incapacitated. (Ord. 12428, 1995; prior code § 17-11)
(Ord. No. 17637, § 10, 8-30-2011; Ord. No. 019688, § 1, 11-19-2024)

2.64.240 Optional retirement benefits.

A. Until the first payment of a retirement allowance is made, an employee or retired em-

ployee, in lieu of the normal retirement allowance, may elect to have the actuarial equivalent of his retirement applied to a different retirement allowance, payable throughout life in accordance with one of the optional settlements specified in this section.

1. In lieu of the normal retirement allowance, an employee may elect to have the actuarial equivalent of his retirement applied to a different retirement allowance, payable throughout life in accordance with one of the optional settlements specified in this section. This election shall be made at the time the employee applies for retirement.

B. Option settlement 1 consists of the right to have a retirement allowance paid him until his death and, if he dies before he receives the amount of his contributions at retirement, to have the balance at death paid to his estate or to such person, having an insurable interest in his life, as he nominates by written designation duly executed and filed with the board. This settlement option is called a "modified cash refund option" and is available only to an employee without a spouse or an employee who has elected to retire under optional settlement 4 as set out in subsection E of this section.

C. Optional settlement 2 consists of the right to have a monthly retirement allowance paid to him until his death, and thereafter to have the same monthly retirement allowance paid to his spouse until the spouse's death or remarriage.

D. Optional settlement 3 consists of the right to have a monthly retirement allowance paid to him until his death, and thereafter to have one-half of his monthly retirement allowance paid to his spouse until the spouse's death or remarriage.

E. Optional settlement 4 consists of the right to have a monthly retirement allowance paid him until his death. If the employee is married, this option is available only with prior written consent of the spouse.

F. The city council may from time to time adopt by resolution the above optional tables when the council finds that such tables are actuarially equivalent to the retirement benefit available to the employee and the death benefit available to the spouse, set forth in Sections 2.64.200 and 2.64.230.

G. If the employee wishes to receive benefits in accordance with one of the above optional tables applicable to his case, he shall exercise his option at the time he applies for his pension. The employee may not change his election after his application for pension has been approved by the board.

H. If a retired employee who has selected an optional settlement dies and leaves a surviving spouse and an unmarried minor child or children under nineteen years of age the surviving spouse shall receive a pension in accordance with the optional settlement as though there were no unmarried minor children under nineteen and the unmarried minor child or children under nineteen shall receive one-third of the pension that would have been paid to the retired employee had he not selected an optional settlement. If after the death of both the retired employee and the spouse there is a minor child or children entitled to benefits under this section, such child or children shall, so long as qualified, be entitled to receive two-thirds of the amount that would have been received by the employee at the time of retirement if he made no optional selection.

I. Employees who have elected to receive early or deferred pension benefits shall be permitted joint or survivor options on same.

J. In accordance with procedures determined by the board of trustees, the spouse of a participant who applies for retirement shall be informed, in writing, whenever a participant elects an optional retirement benefit in lieu of the normal retirement allowance and shall provide to said spouse a description of options available to the participant. (Ord. 12427, 1995; Ord. 11654, 1993; prior code § 17-11.1)
(Ord. No. 18782, § o, 4-17-2018)

2.64.250 Minimum payments.

If under the provisions of this chapter, an employee is entitled to retirement or disability pension, or a widow, child or children are entitled

to death benefits under Section 2.64.230A, B or C and when the total monthly amount thereof as computed under the provisions of this chapter is less than seventy-five dollars, a minimum of seventy-five dollars per month shall nevertheless be paid. If an employee, or his widow, child or children, or either thereof, are entitled to repayment of the amount he himself has contributed to the pension fund, the minimum provisions of this section do not apply. Provided, if the employee is retired for disability under Section 2.64.210 and such disability is total and permanent and the result of a job-related injury or cause, the minimum monthly payment to the employee, regardless of length of service, shall be not less than two hundred and fifty dollars. (Prior code § 17-12)

2.64.260 Computation of length of service.

A. Credit for Employment Prior to Establishment of Fund. When the right to receive any payment from the pension fund, or the amount of such payment, depends upon the participant's length of service with the city, the participant shall have credit, in computing such length of service, for the full period of time that he has been employed by the city or another approved employer prior to the establishment of such fund in any position which would have entitled him to participate in the fund had it been then in effect.

B. Leave of Absence Without Pay. Any participant on leave of absence without pay from his employment with the city or other approved employer may, at his option, continue to make contributions to the pension fund at the rate he would have paid if he had continued receiving from the city or other approved employer the same salary as he received at the time his leave began, plus the equivalent of the employer's contribution thereon. In such case, the participant shall have the same pension rights as if he were not on a leave of absence. The board of trustees shall provide for the time and manner in which such option may be exercised and such contribution made. The participant may get credit for service during the period of his leave of absence or any part thereof by paying into the pension fund for the period of his leave of absence prior to the submission of his application for retirement. The payment shall be the amount he and the city or other approved employer would have both contributed if he had continued receiving from the city or other approved employer the same salary as he received at the time his leave began. The interest rate will be seven and one-half percent per annum compounded annually for back contribution payments made after January 1, 1981. The time for which he does not contribute shall not be counted for pension purposes as time of employment with the city or other approved employer.

C. Service Breaks.

1. If such employment with the city or other approved employer by a person who was first a fund participant before September 1, 2011 has not been continuous, length of service periods shall be computed by adding the actual time of all periods of employment in any position covered by the pension plan; provided, that:

a. If there be any interval during which the participant was not employed by the city or other approved employer, his time of employment prior to such interval shall be counted if the participant has remained a participant and has not withdrawn contributions under Section 2.64.220.

b. If there be any interval during which the person was not employed by the city or other approved employer and the person had become entitled to the benefits under the plan but was not retired and had withdrawn his contributions under Section 2.64.220, the person shall only receive credit for the length of previous service for which he repays all withdrawn contributions to the fund plus interest thereon at seven and one-half percent per annum compounded annually. A person who is reemployed on or after September 1, 2011, and exercises the option under this section to repay all withdrawn contributions to the fund shall give written notice to the pension administration office of his intent to make the repayment within 30 days after the date of his rehire, and shall make the repayment within 90 days after the date of his

rehire. Such a person who fails to timely submit the notice of intent to make the repayment or fails to timely make the repayment shall become a participant of the fund as applicable to persons first hired on or after September 1, 2011, and be subject to all applicable provisions of this chapter regarding the membership in and entitlement to the benefits under the plan regarding such a separate pension. If such option is exercised, all rights or benefits under the plan which depend upon length of service shall recognize the time of previous employment for which all withdrawn contributions have been made good.

2. If such employment with the city or other approved employer by a person who became a fund participant on or after September 1, 2011 has not been continuous, length of service periods shall be computed by adding the actual time of all periods of employment in any position covered by the pension plan; provided, that:

a. If there be any interval during which the participant was not employed by the city or other approved employer, his time of employment prior to such interval shall be counted if the participant has remained a participant and has not withdrawn contributions under Section 2.64.220.

b. If there be any interval during which the person was not employed by the city or other approved employer and the person had become entitled to the benefits under the plan but was not retired and had withdrawn his contributions under Section 2.64.220, the person shall only receive credit for the length of previous service for which he repays all withdrawn contributions to the fund plus interest thereon at seven and one-half percent per annum compounded annually. A person who exercises the option under this section to repay all withdrawn contributions to the fund shall give written notice to the pension administration office of his intent to make the repayment within 30 days after the date of his rehire, and shall make the repayment within 90 days after the date of his rehire. A person who fails to timely submit the notice of intent to make the repayment or fails to timely make the repayment shall become a participant of the fund as applicable to persons first hired on or after September 1, 2011, and be subject to all applicable provisions of this chapter regarding the membership in and entitlement to the benefits under the plan that starts from the date of his rehire. If such option is exercised, all rights or benefits under the plan which depend upon length of service shall recognize the time of previous employment for which all withdrawn contributions have been made good.

D. Notwithstanding anything to the contrary in this section, participants who are on leave of absence without pay due to military active duty orders or when allowed by the Family Medical Leave Act (FMLA) shall not be required to pay interest on back contributions for periods of time while on active duty or on leave allowed by the FMLA, nor shall they be required to pay the equivalent of the employer's contribution; provided, however, that the employer's contribution shall be paid only when the participant's back contributions have been made.

A participant who dies while on active duty or on leave allowed by the FMLA during a period of leave of absence from the city or other approved employer shall receive service credit for pension purposes the same as if the participant had not been on military active duty or on leave allowed by the FMLA; provided, however, that pension contributions have been made by the participant while on active duty or back contributions are made by persons entitled to survivor benefits under this chapter, in the same manner that the participant would have been entitled to make.

Injury occurring while a participant is on active or inactive duty or while on leave allowed by the FMLA shall not be considered as a job-related injury or cause within the meaning of Section 2.64.210 A of this chapter. The provisions of Section 2.64.210 B shall, however, apply in the case of injury occurring on active or inactive duty or while on leave allowed by the FMLA.

E. For any type of purchase of pension service credit authorized and enumerated in this section, and notwithstanding anything contained in

this section to the contrary, the city or other approved employer shall not pick-up or pre-tax contribution payments made pursuant to this section. (Ord. 16619 § 13, 2007; Ord. 16076 §§ 11, 12, 2005; Ord. 10484, 1991; Ord. 10403, 1991; prior code § 17-13)
(Ord. No. 17637, § 11, 8-30-2011; Ord. No. 18782, § p, q, 4-17-2018)

2.64.270 Pension applications—Hearing—Investigations.

The board of trustees shall hear all applications for pensions or benefits under this chapter, after giving written notice to the applicant and posting a public notice of such hearing on the bulletin board in the city hall for at least seventy-two hours before such hearing. Such public notice shall state the time and place of such hearing, the name of the employee whose rights, or the rights of whose beneficiaries, are the subject of the hearing, and the names of all persons claiming such rights and their relationship to the employee. Any person interested in the pension fund may appear in person or by attorney and contest such application. In connection with such hearings or with investigations of any other matter within its jurisdiction the board may require witnesses to give testimony and may issue subpoenas and subpoenas duces tecum, which may be served by any police officer or any person designated by the board of trustees. When the condition of health of any person receiving or claiming a pension or benefits under this chapter is material, the board of trustees may require such person to undergo a medical examination or examinations by a physician satisfactory to the board, and upon refusal to undergo such examination or examinations the board may diminish, discontinue or disallow such pension or benefits. (Ord. 10345, 1991; prior code § 17-14)

2.64.280 Exemptions from debts.

A. No interest in, claims against or payment from such pension fund shall be liable for the payment of any debt or obligation of the person entitled thereto, and the same shall not be subjected to execution, attachment, garnishment, injunction or other legal process for the collection of any debt or obligation. No interest in or claim against such fund shall be transferred or assigned, or put up as security, and any attempt to transfer or assign the same or to put the same up as security shall be void.

B. Nothing herein shall impair the right of the city council to amend the pension ordinance in any respect, or to change the provisions for repayment of contributions. (Prior code § 17-15)
(Ord. No. 17637, § 12, 8-30-2011)

2.64.290 Extent of city's liability.

All rights under this chapter shall be against such pension fund only and the city shall not be liable therefor except to the extent of its contributions to such fund. (Prior code § 17-17)

2.64.300 Adjustment in monthly benefits.

Effective July 1, 1984, the monthly benefits will be increased by five percent for all persons who are entitled to receive pension or benefits as of May 31, 1984, under the provisions of Section 2.64.200, Retirement pensions, 2.64.210, Disability pensions or 2.64.230, Death benefits of widows and children. (Prior code § 17-18)

2.64.400 Internal Revenue Code application.

Notwithstanding anything else contained in this chapter to the contrary, the benefits, limitations, adjustments and other requirements prescribed in this chapter shall at all times comply with the provisions of the Internal Revenue Code, as amended, and all regulations promulgated under the Internal Revenue Code, the terms of which are specifically incorporated into this chapter by reference. (Ord. 16076 § 13, 2005: Ord. 13219 (part), 1997: Ord. 9957, 1990)

2.64.500 Pick-up of required employee contributions.

A. As provided by Section 414(h)(2), of the Internal Revenue Code of 1986 (26 U.S.C. Section

414(h)(2)), the city shall pick-up and pay an employee's required contribution under the provisions of this chapter. The city's pick-up of employee contributions shall take effect on the first full pay period following May 1, 2007. Although the contributions so picked-up are designated as employee contributions, the contributions shall be treated as contributions being paid by the city in lieu of contributions by the employee for determining tax liability under the Internal Revenue Code of 1986 and are not included in the gross income of the employee or the employee's beneficiary. The employee may not choose to receive the picked-up contributions directly, and the city must pay the picked-up contributions to the fund.

B. Employee contributions picked-up under subsection A of this section are included in the compensation of the employee for purposes of determining benefits and contributions under the fund.

C. The city shall pay the employee contributions from the same source of funds used in paying compensation to the employee by reducing the gross compensation of the employee.

D. The city's pick-up of contributions is limited only to an employee's required contribution and is not applicable to any permissive purchase of pension service credit. (Ord. 16619 § 14, 2007)

Chapter 2.68

ECONOMIC DEVELOPMENT LOAN BOARD

Sections:

2.68.010 **Created—Membership—Appointment.**

2.68.020 **Ex officio members.**

2.68.030 **Terms—Removal.**

2.68.040 **Members not to hold other public offices.**

2.68.050 **Chairman, vice-chairman and secretary—Rules and procedures.**

2.68.060 **Staff support.**

2.68.070 **Duties.**

2.68.010 Created—Membership—Appointment.

The economic development loan board is created and shall consist of seven members who shall be residents of the city. The mayor shall appoint one member and each representative shall appoint one member. Membership will be from the following:

A. Three members will be drawn from the finance community;

B. Four members will be appointed from the business community. (Ord. 8140 § 1 (part), 1984)

2.68.020 Ex officio members.

The following shall be ex officio members with the right to attend meetings and speak on questions before the board; but the ex officio members shall have no vote and shall not be counted for the purpose of making a quorum:

A. One member of city council;

B. Chief administrative officer of the city. (Ord. 8140 § 1 (part), 1984)

2.68.030 Terms—Removal.

A. The terms of office for members of the board, other than ex officio members, shall be for two years and the first board members' terms shall be staggered according to the following schedule:

1. Two members shall be appointed for a term of one year;

2. Two members shall be appointed for a term of two years;

3. Three members shall be appointed for a term of three years.

The appointments set out in this subsection shall be made effective the date of final passage of the ordinance codified in this chapter.

B. Upon expiration of the above appointments, all new appointments shall be for a full three-year term. The members of the board shall serve until their successors are appointed and shall be subject to removal under the terms of the City Charter concerning officers appointed by the mayor. (Ord. 8140 §§ 2, 3, 5, 1984)

2.68.040 Members not to hold other public offices.

No member of the board, or other than ex officio members, shall hold any other office of public honor, trust or profit in the government of the city or county during his term of office. (Ord. 8140 § 6, 1984)

2.68.050 Chairman, vice-chairman and secretary—Rules and procedures.

The board members shall select from among their members a chairman, a vice-chairman, and a secretary who shall keep a record of the transactions of the board, and shall provide the board with data and information relating to the function of the board. The board shall adopt rules and regulations for the government of their own proceedings and recommend to the city council standards for the making and repayment of loans, not inconsistent with the Charter and ordinances of the city. (Ord. 8140 § 7, 1984)

2.68.060 Staff support.

Staff support to this board shall be provided by the city's department of economic development. (Ord. 8140 § 4, 1984)

2.68.070 Duties.

The board shall perform the following duties:

A. Promote, receive, review and approve or deny applications for loans intended to create jobs in the city in accordance with the standards adopted by council;

B. Use the reasonable standard of care of the financial community in reviewing loan applications and in creating standards for repayments of loans;

C. Utilize all repayments of loans in conformity with the ordinance codified in this chapter for further loans. (Ord. 8140 § 8, 1984)

Chapter 2.70

BORDER PATROL LOCAL ACCOUNTABILITY COMMISSION

Sections:

2.70.010 Established.

2.70.020 Purposes.

2.70.030 Membership—Terms.

2.70.040 Duties.

2.70.010 Established.

There is hereby created an advisory body to the mayor and council, a body known as the human relations commission, hereinafter referred to as the commission. (Ord. 11427 § 1, 1993: Ord. 11271 § 1, 1992)

2.70.020 Purposes.

The purposes of the commission are: to foster cooperative relations between the commission and border law enforcement agencies including the United States Border Patrol, the Immigration and Naturalization Service, and the United States Customs Service; to inform the mayor and council regarding the needs, problems, status and conduct of these agencies, as these matters affect the El Paso community and these agencies, particularly as exhibited in their common regard for human dignity and their conduct toward one another. (Ord. 11427 § 2, 1993: Ord. 11271 § 3, 1992)

2.70.030 Membership—Terms.

The commission shall consist of fourteen members to be appointed by the mayor and council. The members shall serve for a period of two years and shall be eligible for reappointment. Members of the commission serving at the time of the adoption of this ordinance shall continue in office until the next inauguration of the mayor and council. (Ord. 11271 § 2, 1992)

2.70.040 Duties.

The commission shall perform the following duties:

A. The commission will select from among their members a chairman, a vice-chairman, and alternate vice-chairman; they shall adopt rules and regulations for the government of their own proceedings, and to carry out the purposes for which the board is created, not inconsistent with the Charter and ordinances of the city. The commission shall have the authority to create subcommittees, both standing and special, comprised of commission members and clothed with the authority that the full commission shall delegate.

B. The commission shall obtain and maintain all appropriate records, with requirements for security and confidentiality strictly observed, in accordance with the Texas Open Records Act.

C. The commission shall conduct hearings and investigations subject to the approval of the mayor and city council and in accordance with the Texas Open Meetings Act, but all hearings and investigations shall be conducted with respect for the dignity, rights and liberties of all persons. The commission, however, will not have the authority to issue subpoenas or subpoenas duces tecum, nor the authority to compel the production of evidence at such hearings.

D. The commission shall report, at least quarterly, to the mayor and council.

E. Members of this commission shall have the same legal protection in the exercise of their legitimate duties as that given to any member of an advisory body to the city council of the City of El Paso. (Ord. 11271 §§ 4, 5, 1992)

Chapter 2.72

RESERVED*

*__Editor's note__—Ord. No. 019777, § 2, adopted Aug. 19, 2025, repealed ch. 2.72, §§ 2.72.010—2.72.040, which pertained to committee on border relations and derived from Ord. No. 18789, § 1, adopted May 15, 2018.

Chapter 2.77

RESERVED*

*__Editor's note__—Ord. No. 17204, § 1, adopted September 22, 2009, repealed Chapter 2.77, which pertained to city tree board and derived from Ord. 15627 § 1 (part), 2003; Ord. 16314, §§ 1—3, 2006; Ord. 16988, §§ 1—4, 2008.

Chapter 2.80

CAPITAL IMPROVEMENTS ADVISORY COMMITTEE

Sections:

2.80.010 Capital Improvements Advisory Committee

2.80.010 Capital Improvements Advisory Committee

A. Membership. The Capital Improvements Advisory Committee shall consist of nine members appointed by city council of which at least four shall be representatives of the real estate, development, or building industry who are not employees or officials of a political subdivision or governmental entity and one member shall be a representative of the City's extraterritorial jurisdiction if impact fees are proposed for that area.

B. Terms. At the first meeting of the Capital Improvements Advisory Committee, the terms of office for all nine members will be determined by choosing lots so that four members shall serve for two-year terms and five members shall serve for three-year terms. Upon the expiration of initial terms, and thereafter, all appointments shall be for three-year terms.

C. Duties and Responsibilities.

1. Shall serve in an advisory capacity.

2. Advise and assist the City Council in adopting land use assumptions;

3. Review the capital improvements plan, land use assumptions and impact fees and file written comments in accordance with Section 395 of the Local Government Code and the following:

a. Written comments to the land use assumptions and capital improvements plan shall be filed with the city clerk before the fifth business day before the date of the public hearing on the land use assumptions and capital improvements plan.

b. Written comments to the proposed impact fees shall be filed with the city clerk before the fifth business day before the date of the public hearing on the imposition of impact fees.

4. Monitor and evaluate the implementation of the capital improvements plan;

5. File semiannual reports with respect to the progress of the capital improvements plan and report to City Council any perceived inequities in implementing the plan or imposing the impact fee; and

6. Advise the City Council of the need to update or revise the land use assumptions, capital improvements plan, and impact fee.

7. Other duties as assigned by City Council that relate to impact fees.

D. Meeting rules and procedures generally

1. The planning official shall ensure that the meetings of the Committee are either video streamed or cablecast on the city's government access channel; provided however, that the inability to video stream or cablecast the meeting due to technical difficulties or other difficulties beyond the control of the planning official shall not prevent a scheduled meeting from occurring. No action of the Committee, which is otherwise legal, shall be invalidated merely by reason of the failure to video stream or cablecast the meeting.

2. Any member having a financial interest in property, which is uniquely affected by an item on the Committee agenda, shall disclose such interest prior to participating in the discussion of the item involving the property.

3. Any motion by a member at a duly called meeting shall require a second. After a motion has been made and seconded, discussion of the motion may be had for a reasonable period of time at the direction of the chair. Discussion shall terminate at the direction of the chair or upon a call for a vote on the question by a member of the committee.

4. Whenever any question of procedure may be raised at a committee meeting, the chair shall rule thereon. A member may move to overrule the chair's decision, which may be done only by a majority vote of the members present.

5. Voting on matters may be by voice vote, provided that a roll-call vote shall be taken upon the request of any committee member present.

E. Quorum.

1. A quorum shall consist of five members. The Chair shall have a vote in all matters.

2. No final action shall be taken on any matter except pursuant to a simple majority vote of the members present.

F. Meeting rules and procedures generally.

1. Any motion by a member at a duly called meeting shall require a second. After a motion has been made and seconded, discussion of the motion may be had for a reasonable period of time at the direction of the chair. Discussion shall terminate at the direction of the chair or upon a call for a vote on the question by a member of the committee.

2. Whenever any question of procedure may be raised at a committee meeting, the chair shall rule thereon. A member may move to overrule the chair's decision, which may be done only by a majority vote of the members present.

3. Voting on matters may be by voice vote; provided that a roll-call vote shall be taken upon the request of any committee member present. (Ord. 17016, § 1, 10-28-2008; Ord. No. 17080, § 1, 3-10-2009)

(Ord. No. 17398, § 6, 8-24-2010, eff. 9-1-2010)

Chapter 2.84

ACCESSIBILITY GRIEVANCE COMMITTEE

Sections:

2.84.010 Created.

2.84.020 Membership—Appointment.

2.84.030 Grievance procedures.

2.84.040 Employment-related issues.

2.84.010 Created.

There is created an accessibility grievance committee to provide prompt and equitable resolution of complaints alleging unlawful discrimination by the city on the basis of handicap, under local ordinances, or accessibility issues under federal laws, including Title II of the Americans with Disabilities Act (July 26, 1990, P.L. 101-336, § 2, 104 Stat. 327, 42 U.S.C.S. 12101) and federal regulations thereto. (Ord. 11524 § 1, 1993; Ord. 10906 § 1, 1992: Ord. 8345 § 1, 1985)

2.84.020 Membership—Appointment.

A. The committee shall consist of nine members to be appointed by the mayor and city council to serve without compensation for a term of three years, except that three members shall be appointed to serve for an initial term of two years.

B. The committee shall select from among their number a chairman and a vice chairman. The director of community and human development shall designate an executive secretary to provide staff support. (Ord. 11524 § 2, 1993; Ord. 10906 § 2, 1992: Ord. 9779 (part), 1989; Ord. 8345 § 2, 1985)

2.84.030 Grievance procedures.

The committee shall create, adopt and make public grievance procedures that incorporate appropriate due process standards and that provide for the prompt and equitable resolution of complaints alleging any action prohibited by Title 24, CFR, Part 8, or the Americans with Disabilities Act, Title II (Public Services), including, but not limited to:

A. Investigating all written allegations of discrimination by the city on the basis of handicap received within a reasonable time of the occurrence giving rise to the allegations; and

B. Attempting to find a voluntary resolution satisfactory to both parties; and

C. Conducting public hearings within a reasonable time after receipt of the complaint if no voluntary resolution is reached and making determinations based on the evidence received; and

D. Making a report and recommendation to the mayor and council if no voluntary resolution is reached and the determination of the committee is unsatisfactory to either party. (Ord. 10906 § 3, 1992: Ord. 10393 § 1, 1991; Ord. 8345 § 3, 1985)

2.84.040 Employment-related issues.

This chapter is not to be construed as conferring any jurisdiction on the accessibility grievance committee in matters pertaining to employment-related issues, including the application and pre-employment processes. (Ord. 10906 § 4, 1992)

Chapter 2.92

ETHICS*

Sections:

Article I. Code of Ethics

2.92.010 Policy and purpose.

2.92.020 Definitions.

Article II. Standards of Conduct

2.92.030 General provisions.

2.92.040 Gifts.

2.92.050 Reporting requirements.

2.92.060 Restrictions for former city officers and employees.

2.92.070 Campaign finances.

2.92.080 Disclosure of campaign contributions and donations.

2.92.090 Ethics training.

Article III. Ethics Review Commission

2.92.100 Purpose and mission.

2.92.110 Membership.

2.92.120 Jurisdiction.

2.92.130 Duties.

2.92.140 Procedures.

2.92.150 Advisory opinions.

2.92.160 Filing a complaint.

2.92.170 Complaint review.

2.92.180 Ex parte communications.

2.92.190 Hearing.

2.92.200 Disposition.

2.92.210 Reconsideration.

***Editor's note**—Ord. No. 19139, § 1, adopted Feb. 16, 2021, repealed the former Ch. 2.92, §§ 2.92.010—2.92.120, 2.92.150, and enacted a new Ch. 2.92 as set out herein. The former Ch. 2.92 pertained to similar subject matter and derived from Ord. 10663; Ord. 10976; Ord. 13880; Ord. 15030; Ord. 15293, §§ 2—6, 8, 10, adopted in 2002; Ord. 15855 § 1, adopted in 2004; Ord. 16301 §§ 2—4, 6, adopted in 2006; Ord. No. 17112, §§ 1—8, 10, adopted April 21, 2009; Ord. No. 17579, § 1, adopted June 14, 2011; Ord. No. 17752, § 1, adopted March 20, 2012; and Ord. No. 17949, § 1, adopted Feb. 19, 2013.

Cross reference—Compliance with Ethics Ordinance, § 2.34.030.

Article I. Code of Ethics

2.92.010 Policy and purpose.

A. All city officers and employees have a fiduciary duty to the citizens of the city to be ethical in fulfilling the responsibilities of their positions. At the very least, being ethical includes being disposed to comply with all laws that apply to one's position.

B. Ethical conduct is motivated by sources inside and outside the law. The Texas Local Government, Election and Penal Codes regulate aspects of the conduct of city officers and employees. However, as ethical conduct is more than complying with state codes, the city strongly encourages all of its officers and employees to maintain the highest personal values and standards. While it is impossible to establish specific and exhaustive standards for all situations, the standards established in this chapter are minimum standards below which no city officer or employee's conduct should fall. This chapter has the following purposes:

1. To establish an ethics review commission;

2. To maintain and improve standards of public service;

3. To improve public confidence in the integrity of city government;

4. To provide a process by which officers and employees may identify and resolve ethical issues;

5. To avoid conflicts between the personal interest and the public responsibilities of city officers and employees;

6. To establish minimum standards of conduct to be adhered to by city officers and employees;

7. To require disclosure of private financial interests by certain individuals;

8. To require reporting of certain gifts received by certain individuals;

9. To provide for complaints and resolution of ethical issues and concerns; and

10. To provide penalties for failure to adhere to the minimum standards set forth in this chapter.

C. This chapter is cumulative of and supplemental to all applicable provisions of the City Charter, other city ordinances, and state and federal laws and regulations. Compliance with this chapter does not excuse or relieve any person from any obligation imposed by the City Charter, other city ordinances, or state or federal laws or regulations. The filing of an ethics complaint pursuant to this chapter does not prohibit a person from availing themselves of the various remedies available to them under state or federal laws.

D. To ensure and enhance public confidence in the city government, each city official and employee must not only adhere to the principles of ethical conduct set forth in this Code and compliance therewith, but they must scrupulously avoid the appearance of impropriety at all times. This section shall not be used for the basis of an ethical complaint.
(Ord. No. 19139, § 1, 2-16-2021)

2.92.020 Definitions.

A. For the purposes of this chapter, the following definitions shall apply. This section shall not be used for the basis of an ethical complaint. Terms not defined in this chapter, but defined in the Texas Election Code, shall have the meanings assigned to them in the Texas Election Code.

1. "Affinity" means that two individuals are related to each other by affinity if they are married to each other, or the spouse of one of the individuals is related by consanguinity to the other individual (by marriage). The ending of a marriage by divorce or the death of a spouse ends relationships by affinity created by that marriage unless a child of that marriage is living, in which case the marriage is considered to continue as long as a child of that marriage lives. An individual's relatives within the third degree by affinity are anyone related by consanguinity to the individual's spouse in one of the ways named in the definition of consanguinity in this section; and the spouse of anyone related to the individual by consanguinity in one of the ways named in the definition of consanguinity in this section.

2. "Board" means a board, commission or committee:

a. Which is established to participate in some manner in the conduct of city government, including participation which is merely advisory, whether established by city ordinance or City Charter, interlocal contract, state law or any other lawful means; and

b. Any part of whose membership is appointed by the city council, but does not include a board, commission, or committee, which is the governing body of a separate subdivision of the state.

3. "Candidate" means a person who knowingly and willingly takes affirmative action for the purpose of gaining nomination or election to public office or for the purpose of satisfying financial obligations incurred by the person in connection with the campaign for nomination or election for an elected office of the City of El Paso. Examples of affirmative action include:

a. The filing of a campaign treasurer appointment, except that the filing does not constitute candidacy or an announcement of candidacy for the purposes of the automatic resignation provisions of Article XVI, Section 65, or Article XI, Section 11, of the Texas Constitution;

b. The filing of an application for a place on the ballot;

c. The filing of a declaration of intent to become a candidate or a declaration of write-in candidacy;

d. The making of a public announcement of a definite intent to run for public office in a particular election, regardless of whether the specific office is mentioned in the announcement;

e. Before a public announcement of intent, the making of a statement of definite intent to run for public office and the soliciting of support by letter or other mode of communication;

f. The soliciting or accepting of a campaign contribution or the making of a campaign expenditure;

All references to candidate shall include the candidate's principal campaign committee, whether or not the candidate acts as treasurer for reporting purposes. Candidate shall not include a city official or employee who is a candidate for any other elected office.

4. "City" means the City of El Paso, Texas.

5. "City resources" means any city asset, including but not limited to facilities, equipment, supplies, software, and personnel services.

6. "Clear and convincing" means a measure or degree of proof that produces in a person's mind a firm belief or conviction as to the truth of the allegations sought to be established.

7. "Conducting business with the city" means any natural person who provides goods and services or seeks to provide goods and services to the city, or received or seeks to receive services from the city. This excludes natural persons seeking open records requests.

8. "Confidential information" includes: (a) all information held by the city that is not available to the public under Chapter 552 of the Texas Government Code (Public Information Act); (b) any information from a meeting closed to the public pursuant to Chapter 551 of the Texas Government Code (Open Meetings Act); or (c) any information protected by attorney-client, attorney work product, or other applicable legal privilege.

9. "Consanguinity" means that two individuals are related to each other if one is a descendant of the other, or they share a common ancestor (by blood). An adopted child is considered to be a child of the adoptive parent for this purpose. An individual's relatives within the third degree by consanguinity are the individual's parent or child (relatives in the first degree); brother, sister, grandparent, or grandchild (relatives in the second degree); and great-grandparent, great-grandchild, aunt who is a sister of a parent of the individual, uncle who is a brother of a parent of the individual, nephew who is a child of a brother or sister of the individual, or niece who is a child of a brother or sister of the individual (relatives in the third degree).

10. "Contribution" means a direct or indirect transfer of money, goods, services, or any other thing of value and includes an agreement made or other obligation incurred, whether legally enforceable or not, to make a transfer. The term includes a loan or extension of credit, other than those expressly excluded by the Texas Election Code, and a guarantee of a loan or extension of credit. In-kind expenses, as defined in this section, is not a contribution.

11. "Contributor" means a person making a contribution, including the contributor's spouse.

12. "Days" means calendar days excluding city holidays.

13. "Designated employee" for purposes under this section, means the city manager, deputy city managers, all city department heads or directors, and the executive assistants to the mayor.

14. "Employee" means a person employed and paid a salary by the city whether under civil service or not, including those individuals on a part-time basis and including those officially selected for employment but not yet serving; but does not include an independent contractor or city council member. For purposes of this chapter and for no other purpose, the term employee includes volunteers.

15. "Ex parte communications" means a communication made at a time other than during a public meeting of the ethics review commission, a commission panel, or the city council, excluding documents or information submitted pursuant to the requirements of this chapter and any correspondence or other communications sent to the city attorney.

16. "Frivolous complaint" means a sworn complaint that is groundless and brought in bad faith or groundless and brought for the purpose of harassment.

17. "Gift" means any gift, benefit or other economic gain or economic advantage to an officer or employee or to a relative of an officer or employee.

18. "Honorarium" shall mean a payment, other than reimbursement for meals, travel or lodging expenses, for services provided in connection with addressing an audience or engaging in a seminar.

19. "In-kind expenses" means the value of personal services provided without compensation by any individual who volunteers on behalf of a candidate or political committee and incidental vehicular travel expenses incurred in conjunction with the provision of the personal services.

20. "Mailbox rule" means that a document sent to another person or party by mail is considered served, and a period of limitations begins to run, on the day it is placed, with proper postage and a correct address, into the mailbox. As used in this chapter, the mailbox rule shall apply to the triggering of limitation periods and the calculation of deadlines for providing and responding to written notices.

21. "Ministerial act" means an act performed in a prescribed manner and does not require the exercise of any judgement or discretion.

22. "Newly discovered evidence" means evidence that was in existence at the time of the hearing, but was unknown to the parties involved and could not have been discovered with reasonable diligence before the hearing.

23. "Officeholder" means the incumbent holding an elected city office.

24. "Officer" means a member of the city council any member of a board appointed by the city council, and municipal court judges. It includes any member of a board that functions only in an advisory or study capacity.

25. "Official city business" means a purpose or function related to the duties or activities of office or employment.

26. "Political committee" means a specific purpose political committee or a general purpose political committee as those terms are defined in the Texas Election Code.

27. "Public event, appearances or ceremonies" means those functions, activities and ceremonies conducted by or for the benefit of any governmental entity; a function, activity or ceremony conducted by a non-profit corporation or similar organization formed for educational, scientific, community-betterment or economic development purposes which relates to the purpose for which the non-profit corporation or organization was formed; or a function, activity or ceremony which honors or recognizes the accomplishments of a political, prominent or public figure.

28. "Quasi-judicial proceeding" means by hearing or proceeding held by a public administrative Officer, to include but not be limited to a hearing officer, arbitrator or administrative law judge, who is required to hear or investigate facts and to draw conclusions from them as a basis for his or her official action and to exercise discretion of a judicial nature.

29. "Relative" means a person who is related to an officer or employee as spouse or as any of the following, whether by marriage, blood or adoption: parent, child, brother, sister, aunt, uncle, niece, nephew, grandparent, grandchild, father-in-law, mother-in-law, son-in-law, daughter-in-law, stepfather, stepmother, stepson, step son-in-law, stepdaughter, step daughter-in-law, stepbrother, stepsister, half-brother, half-sister, brother-in-law or sister-in-law.

30. "Resident" means any natural person that resides within the city limits for fourteen or more consecutive days and can provide proof such as a state issued identification card.

31. "Substantial interest in business entity" means the definition provided in Texas Local Government Code Section 171.002 as may be amended.

32. "Volunteer" means an individual who provides services to the city without any expectation of compensation or financial gain and without receiving any compensation or financial gain.

(Ord. No. 19139, § 1, 2-16-2021; Ord. No. 019581, § 7, 12-12-2023; Ord. No. 019620, § 1, 4-23-2024)

Article II. Standards of Conduct

2.92.030 General provisions.

A. Officers or employees:

1. Shall not use their official positions improperly to secure unwarranted privileges or exemp-

tions for themselves, relatives, or others. This provision does not preclude officers or employees from acting in any manner consistent with their official duties or from zealously providing public services to anyone who is entitled to them;

2. A city officer or employee shall not acquire an interest in, or be affected by, any contract, transaction, zoning decision, or other matter, if the official or employee knows, or has reason to know, that the interest will be directly or indirectly affected by impending official action by the city;

3. Shall not participate in making or influencing any city governmental decision or action in which they know that they have any financial interest distinguishable from that of the public generally or from that of other city officers or employees generally;

4. Shall not give reasonable basis by their conduct for the impression that any person can improperly influence, or unduly enjoy their favor in, the performance of their official duties, or that they are unduly affected by the kinship, rank, position or influence of any person;

5. Shall not use his or her position to secure official information about any person or entity for any purpose other than the performance of official responsibilities and duties;

6. Shall not use or disclose, other than in the performance of their official duties or as may be required by law, confidential information gained in the course of or by reason of their positions. This provision applies to former officers and employees as well as to current ones;

7. Shall not utilize city resources or by omission allow city resources to be utilized for personal benefit or the personal benefit of any other person or entity, except to the extent that the benefit received is strictly incidental to the performance of official duties, or to the extent that the person is entitled by law to obtain public services from the city;

8. Shall not transact any business (other than ministerial acts) on behalf of the city with any business entity of which they are officers, agents or members, or in which they have a financial interest. In the event such a circumstance arises, then they shall make known their interest, and:

a. In the case of an officer, abstain from voting on the matter and refrain from discussion of the matter at any time with the other members of the body of which he or she is a member and with any other person or body in city government which may consider the matter; and

b. In the case of an employee, disclose the matter to an appropriate administrative authority within city government so that reassignment or other suitable action may be taken to remove the employee from any further involvement in the matter;

9. Shall not personally provide services for compensation, directly or indirectly, to a person or organization who is requesting an approval, investigation, or determination from the body or department of which the officer or employee is a member. This restriction does not apply to outside employment of an officer if the employment is the officers primary source of income;

10. Shall not accept other employment or engage in outside activities incompatible with the full and proper discharge of their duties and responsibilities with the city, or which might impair their independent judgment in the performance of their public duty;

11. Shall not personally participate in a decision in a matter if the officer or employee is negotiating or has an arrangement concerning prospective employment with a person or organization that has a financial interest in a matter under consideration by or within the jurisdiction of the city, and in the case of an employee if it has been determined by the city manager that a conflict of interest exists. For purposes of this section, the term "decision" shall mean a decision, approval, disapproval, recommendation, investigation or rendering of advice, and the term "matter" shall include but not be limited to a matter, proceeding, application, request for ruling or determination, contract or claim which involves the city. In such instance, the officer or employee shall:

a. In the case of an employee, immediately notify the official responsible for appointment to

his or her position of the nature of the negotiation or arrangement and, if the city manager determines that a conflict of interest exists, follow the instructions of the city manager with regard to further involvement in the matter; or

b. In the case of a board member, immediately notify the board of which he or she is a member of the nature of the negotiation or arrangement and:

i. Refrain from discussing the matter at any time with other board members or members of the city council if the city council will also consider the matter; and

ii. Abstain from voting on the matter; or

c. In the case of a member of the city council, file an affidavit with the city clerk describing the nature of the negotiation or arrangement and:

i. Refrain from discussing the matter at any time with other council members or members of a board that will consider the matter; and

ii. Abstain from voting on the matter;

12. Shall not receive any fee or compensation for their services as officers or employees of the city from any source other than the city, except as may be otherwise provided by law. This shall not prohibit their performing the same or other services for a public or private organization that they perform for the city if there is no conflict with their city duties and responsibilities;

13. Shall not recklessly disregard the established practices or policies of the city relating to the duties assigned to the officer or employee;

14. Shall not, in the case of a member of the city council or an employee, personally represent or appear in behalf of the private interest of another before the city council, or any city board or department; or, if the represented person's interest is adverse to that of the city, represent any person:

a. In any quasi-judicial proceeding involving the city; or

b. In any judicial proceeding to which the city is a party; provided that nothing in this subsection shall preclude:

i. A city council member from speaking or appearing without compensation before the city council or any board or department on behalf of constituents in the course of his or her duties as an elected official;

ii. Any employee from performing the duties of his or her employment;

iii. Any employee from appearing before the city council or any city board or department, in a manner consistent with other city policies and rules, to discuss any general city policies or public issues, including the presentation of viewpoints or petitions of other employees; or

iv. A city council member or an employee from testifying as a witness under subpoena in a judicial or quasi-judicial proceeding; and

15. Shall not, in the case of a board member, personally represent or appear in behalf of the private interests of another:

a. Before the board of which he or she is a member;

b. Before the city council unless the board member discloses his or her status as a board member to the council and the representation or appearance does not relate to a matter that was heard or decided by the board of which the board member is a member or a board that has appellate jurisdiction over the board of which the board member is a member;

c. Before a board which has appellate jurisdiction over the board of which he or she is a member; or

d. In a judicial or quasi-judicial proceeding to which the city or an employee of the city is a party, if the interest of the person being represented is adverse to that of the city or an employee of the city and the subject of the proceeding involves the board on which the board member is serving or the department providing support services to that board.

16. An officer or employee shall not intentionally or knowingly assist or induce, or attempt to assist or induce, any person to violate the provisions in this chapter.

(Ord. No. 19139, § 1, 2-16-2021)

2.92.040 Gifts.

A. An officer or employee shall not solicit, accept, or agree to accept for themselves or a relative, the following:

1. Any gift, of which the known or readily apparent value for each separate gift, exceeds seventy-five dollars in value;

2. Any gift that might reasonably tend to influence them to act improperly in the discharge of official duties, or reasonably tend to improperly reward official conduct; or

3. Any gift from any lobbyist registered under Chapter 2.94 of this Code, of which the known or readily apparent value for each separate gift exceeds ten dollars in value.

B. Special applications. Subsection A above does not include:

1. Political contributions made or received and reported in accordance with the Texas Election Code;

2. Awards, such as plaques, certificates, trophies or personalized mementos, which are reasonable in light of the occasion and publicly presented in recognition of public service;

3. A gift from a relative or a personal, professional, or business relationship independent of the official status of the recipient;

4. Gifts or other tokens of recognition presented by representatives of governmental bodies or political subdivisions who are acting in their official capacities which are accepted for the city or in conjunction with the officeholder duties of an elected official;

5. Commercially reasonable loans made to an officer or employee in the ordinary course of the lender's business;

6. Reasonable hosting, including travel and expenses, entertainment, meals or refreshments furnished in connection with public events, appearances or ceremonies related to official city business, if furnished by the sponsor of such public event; or in connection with attending seminars or workshops, speaking engagements, teaching, or rendering other public assistance to an organization or another governmental entity;

7. An honorarium, transportation or lodging, the acceptance of which is not prohibited under Sections 36.07 and 36.08, Texas Penal Code;

8. A ticket or admission pass, regardless of the actual or face value of the ticket or admission pass, to an event that is sponsored or conducted by the city;

9. A ticket or admission pass, regardless of the actual or face value of the ticket or admission pass, to an event in which the officer or employee is participating in connection with official duties or in which the officer or employee is participating in connection with his spouse's or child's position or duties, provided that the receipt of such ticket is reported as a reportable gift if such reporting is required under Section 2.92.070 B.2. of this Code; and

10. Any solicitation for civil or charitable causes, or admission to a charity event provided by the sponsor of the event, where the offer is unsolicited by the officer or employee.

11. Items received that are of nominal value (less than ten dollars).

(Ord. No. 19139, § 1, 2-16-2021)

2.92.050 Reporting requirements.

A. Financial disclosure.

1. Each officer, excluding elected officials whose financial disclosure requirements are governed by City Charter, and each designated employee, shall file with the city clerk, within ten business days after the date of his appointment, selection or approval by the city council, a statement disclosing:

a. Where, by whom and in what specific capacity that person is employed or self-employed;

b. Membership on boards of directors of corporations, whether organized for profit or not;

c. Partnership interests; and

d. The name and address of any business in which the person has a financial investment, and in the case of mutual funds and other similar pooled investments, the name of the fund or investment. For purposes of this subsection, a financial investment shall not include funds on deposit

with financial institutions such as checking and savings accounts, investments in United States savings bonds, and similar investments that earn simple, compounded or money-market interest rates; unless the person has previously been appointed to a position that requires the filing of a financial disclosure form and the person already has a current financial disclosure form on file with the city clerk.

2. Each person submitting a statement of financial disclosure required under this section shall utilize a form provided by the city clerk, which shall be signed and submitted in hard copy, or submitted electronically or by facsimile as may be provided by the city clerk. The form or submission process shall provide a means by which the submitter affirms his identity and the accuracy of the statements made therein.

3. No person submitting such a statement of financial disclosure must indicate therein the extent of financial involvement in any investments.

4. The members of the boards and commissions identified below and every designated employee shall thereafter file with the city clerk a financial disclosure statement, between June 1st and June 30th of each year while in office or employed by the city. Each person subject to this section shall file a revised financial disclosure form at any time in which the person changes his primary employment or has made changes in financial investments which cumulatively total more than thirty-five percent of the person's total investments. Those persons who have no changes to report regarding the information required to be reported, may, in lieu of filing a complete financial disclosure form, file a short form annual report, provided that they have filed a complete financial disclosure form within the previous five years.

a. Building and standards commission.

b. City plan commission.

c. Civil service commission.

d. Construction board of appeals.

e. Ethics review commission.

f. Historic landmark commission.

g. Parks and recreation board.

h. Public service board.

i. Zoning board of adjustment.

5. Each candidate for elective office and each candidate for appointment to the boards and commissions identified or as a designated employee shall be provided with a notice of financial disclosure requirements at the time of application for such office or employment.

6. Each year, by August 15th, the city clerk shall prepare a report noting whether each person, who is required to file a financial disclosure statement has done so as of the date of the city clerk's report. If the person has not filed their required financial disclosure statement upon the time the city clerk finished the report or the person fails to file their financial disclosure statement within fourteen days of their appointment and they do not already have a current financial disclosure statement on file, the city clerk shall send a written notice by certified mail, return receipt requested, with a copy sent by regular mail, to the person to advise them that they have not filed a financial disclosure statement as required by this section and that they have fourteen days from the date of the letter to file his or her financial disclosure statement. If the person is a board member covered under Section 2.92.050(A)(9)(e), the city clerk will also advise the board member that the failure to timely file the financial disclosure statement will result in the automatic removal of that board member from his or her office. In the event of an unforeseen circumstance, including but not limited to, military service or acute illness or leave without pay under the Family Medical Leave Act, the deadline for receipt by the city clerk is extended until such time as the board member or employee resumes his or her city duties.

7. In the event that a designated employee that reports to the city manager, fails to file a required financial disclosure report, or had filed incomplete or unresponsive information by the deadlines calculated under Section 2.92.050(A)(1) of this section, the city clerk shall notify the individual that the matter is being forwarded to the city manager for appropriate action.

8. In the event that a board member fails to file his or her financial disclosure statement or has filed incomplete or unresponsive information by the deadlines calculated under Section 2.92.050(A)(1), (4), or (9) of this section, the following actions will be taken:

a. In the event that the board member is a member of the civil service commission, the city clerk shall prepare and send a notice of the failure of the civil service commission member to file a financial disclosure statement to each member of the city council for their review and consideration regarding the possible removal of the civil service commission member from office in accordance with Section 6.1-10 of the City Charter.

b. In the event that the board member is a member of the zoning board of adjustment, the city clerk shall prepare and send a notice of the failure of the zoning board of adjustment member to file a financial disclosure statement to each member of the city council for their review and consideration regarding the possible removal of the zoning board of adjustment member from office in accordance with Section 211.008, Texas Local Government Code.

c. In the event that the board member is a member of the public service board other than the mayor, the city clerk shall prepare and send a notice of the failure of the public service board member to file a financial disclosure statement to each member of the city council for their review and consideration regarding the possible removal of the public service board member from office in accordance with the applicable removal provisions contained in any pertinent ordinance adopted by the city for the issuance of water or sewer revenue bonds.

d. In the event that the board member is a member of the El Paso Housing Finance Corporation, the industrial development authority, or other similar corporation organized pursuant to state law, the city clerk shall prepare and send a notice of the failure of the board member to file a financial disclosure statement to each member of the city council for their review and consideration regarding the possible removal of the board member from office in accordance with the applicable removal provisions contained in any articles of agreement or bylaws of the corporation or statutory provisions.

e. In the event that the board member is a member of any other city board subject to the requirement of this section, that board member shall be deemed removed from office without action or review by the city council. The city clerk shall prepare and send a notice of the removal to the board member and to the city council member who had appointed the board member. The removal shall be effective on the date that the notice is deposited in the United States mail or if not mailed, upon delivery to the board member.

9. The removal provision established in Section 2.92.050(A)(9)(e) of this section for the failure of a board member to file a financial disclosure statement shall be in addition to and shall be controlling over any other city ordinance or city council resolution that establishes procedures for the removal of board members.

10. Financial disclosure reports are open records subject to the Texas Open Records Act, and shall be maintained in accordance with the Local Government Records Act.

B. Reporting of gifts.

1. Each officer and designated employee shall keep a written record of all reportable gifts received during his or her term of office or employment.

2. Such record shall be made for each calendar month. The record shall include a description of the reportable gift received; the name of the person and organization giving the reportable gift; the relationship of the donor to the reporter; the value or estimated value of the reportable gift; and the immediate or intended disposition of the reportable gift. A reportable gift consisting of a certificate or admission ticket or pass to a future event or activity shall be deemed to have been received on the date on which the certificate or admission ticket or pass was received, and if such

certificate or admission ticket or pass must be reported under subsection (B)(4)(d), a statement as to the duties performed.

3. Such monthly record shall be submitted to the city clerk on the form she provides no later than the tenth day of the following month for each month during which a reportable gift is received.

4. "Reportable gifts" for purposes under this section shall mean the following:

a. Any gift that is not covered by the special applications under Section 2.92.040 B of this Code, has a value of more than ten dollars, and was conferred on account of the official status of the recipient or in connection with official city business, except as provided below in subsections b, c and d;

b. Any hosting, such as travel and expenses, entertainment, meals or refreshments, that has a value of more than fifty dollars, other than hosting provided on account of kinship or a personal, professional, or business relationship independent of the official status of the recipient;

c. Any award presented in recognition of public service, or an honorarium, with a value of more than fifty dollars; and

d. Any tickets or other admission passes to an event with an actual or face value of more than ten dollars for all tickets or admission passes to the same event received at the same time, except for tickets or admission passes provided by the city for an event that is sponsored or conducted by the city.

5. Any gift, benefit, hosting, honorarium or other economic gain or economic advantage that is refused and returned to the sender within seventy-two hours of receipt shall not constitute a reportable gift under this section.

6. Any gift which exceeds seventy-five dollars in value, which is not covered by the special applications under Section 2.92.040 B of this Code and which is turned over to the city manager within seventy-two hours of receipt for acceptance as a gift to the city, shall not constitute the acceptance of a gift in violation of this Code, provided that the disposition of such gift is reported on a timely filed reportable gift form.

7. The manager, on a monthly basis, shall prepare a report which shall be made available to the public of all gifts that have been turned over to his office for acceptance as a gift to the city.
(Ord. No. 19139, § 1, 2-16-2021)

2.92.060 Restrictions for former city officers and employees.

A. All executive staff or salaried professional employees reporting directly to the city manager as described in Section 6.2-2(H), Unclassified Services of the City Charter, are prohibited during the twelve months after leaving the service or employment of the city, to engage in lobbying activities as a registered lobbyist as regulated in Chapter 2.94 of this Code, or represent any other person or organization in any formal or informal appearance before the city council or a city board or department.

B. An officer or other employee in a position which involves significant reporting, decision-making, advisory, or supervisory responsibility who leaves the service or employment of the city shall not, during the twenty-four months after leaving the service or employment of the city, engage in lobbying activities as a registered lobbyist as regulated in Chapter 2.94 of this Code, or represent any other person or organization in any formal or informal appearance before the city council or a city board or department. For purposes of this subsection only the term "Officers" excludes members of boards and commissions of the city.

C. No former members of the building and standards commission, city plan commission, civil service commission, ethics review commission, historic landmark commission, parks and recreation board, public service board, the zoning board of adjustment, or any other board or commission of the city, shall, during the twelve months after leaving the board or commission, engage in lobbying activities as a registered lobbyist as regulated in Chapter 2,94 of this Code, or represent any person

or organization in any formal or informal appearance before their former respective board or commission.

D. Former officers and employees shall not use for their personal benefit and shall not disclose, except as may be required by law, confidential information gained in the course of or by reason of their positions. This provision shall not prohibit the disclosure of any such information to incumbent city officers or employees to whose duties such information may be pertinent.

E. No person shall, during the twelve months after having served on and left the civil service commission, represent any classified employee of the city before the civil service commission or before a hearing officer appointed by the civil service commission on a disciplinary matter or grievance. Additionally, a person after leaving the civil service commission, shall not represent an employee on any matter before the civil service commission or a hearing officer appointed by the civil service commission that went before the civil service commission during the time that such person served on the civil service commission.

F. No person shall, during the twelve months after having served on and left the civil service commission, be appointed as a hearing officer for the civil service commission.

G. No person appointed as a hearing officer for the civil service commission shall, during the time of service and for twelve months after having served, represent any classified employee of the city before the civil service commission or before a hearing officer appointed by the civil service commission on a disciplinary matter or grievance. A former hearing officer appointed by the civil service commission shall not represent a classified employee on any matter before the civil service commission or a hearing officer appointed by the civil service commission that went before such person during the time he or she served as a hearing officer.

(Ord. No. 19139, § 1, 2-16-2021; Ord. No. 019757, § 1, 7-22-2025)

2.92.070 Campaign finances.

A. Conformity with Texas Election Code. Pursuant to this chapter, candidates, officeholders and political committees participating in city elections may be required to make additional disclosures, to file additional notices, and to comply with certain restrictions not set out in the Texas Election Code. It is not the intent of the city to enact any provision in conflict with or in derogation of the Texas Election Code. The requirements set out in this section are cumulative of those in the Texas Election Code, and nothing in this section shall be construed to limit obligations imposed by the Texas Election Code.

B. Applicability of section.

1. The provisions of this section pertaining to candidates and officeholders shall apply to all persons who have an active appointment of a campaign treasurer by a candidate form on file with the city clerk.

2. Officeholders are subject to the regulations applied to candidates for the office he or she holds.

C. Campaign contributions.

1. An individual shall not make a contribution in support of, or opposition to, a candidate for city office under a name other than the name by which the individual is identified for legal purposes.

2. A contribution must be made in the name of the individual who owns and is contributing the thing of value, and one individual shall not make a contribution on behalf of another individual.

3. It shall be unlawful for any person who is an adverse party in any pending litigation against the city, or who has an ownership interest of ten percent or more in any entity that is an adverse party to the city in any pending litigation to contribute or donate any funds to any candidate for city office if the litigation seeks recovery of an unspecified amount or of an amount in excess of twenty-five thousand dollars, exclusive of costs of court and attorneys' fees. Such restriction shall not be applicable to attorneys representing a person or entity in pending litigation against the city. It shall be the duty of any candidate to refuse to accept

any contribution that may be offered by a person who is known to the candidate to have a litigation interest described in this section. In the event that any candidate unknowingly accepts a contribution in contravention of the foregoing provision, then it shall be the duty of the candidate to return the contribution within ten days after the candidate becomes aware of the litigation.

D. Required filings.

1. Each candidate shall file with his application, consent and affidavit of candidate, a written statement acknowledging that he or she has received a copy of the city's campaign finance regulations.

2. A political committee which makes contributions or expenditures in connection with advocating or opposing a position or issue in a city election must file with the city clerk a copy of each contribution and expenditure report filed with the Texas Ethics Commission. The filing date for filing with the city clerk shall be the date established under the Texas Election Code for filing with the Texas Ethics Commission.

3. The starting and ending dates of reporting periods and the due dates of contribution and expenditure reports by candidates for city elections, officeholders and by political committees shall be governed by the Texas Election Code.

4. Contribution and expenditure reports required to be filed with the city clerk's office under the Texas Election Code must be filed and updated electronically except as provided in Section 2.92.070(D)(4)(b).

a. The city will provide access to computer equipment for candidates to file the electronic reports.

b. A candidate, officeholder, or political committee that is required to file electronic reports under this chapter may apply for an exemption with the city clerk if:

i. The candidate, officeholder, or campaign treasurer of the committee files with the city clerk's office an affidavit stating that the candidate, officeholder, or committee, or a person with whom the candidate, officeholder, or committee contracts does not use computer equipment to keep the current records of political contributions, political expenditures, or persons making political contributions to the candidate, officeholder, or committee; and

ii. The candidate, officeholder, or committee does not, in a calendar year, accept political contributions that in the aggregate exceed the greater of twenty thousand dollars or the amount stated in Section 254.036(C)(2) of the Texas Election Code, as amended, or make political expenditures that in the aggregate exceed the greater of twenty thousand dollars or the amount stated in Section 254.036(C)(2) of the Texas Election Code, as amended.

c. The city will post the contribution and expenditure reports through the city's website. A paper copy of any report will be made available, upon written request.

d. Failing to timely file a report required by this section is a violation hereof, as is the filing of a report with incorrect, misleading, or incomplete information. If an individual inadvertently files an incorrect or incomplete report, it is his or her responsibility to file an amended report as soon as possible, though no later than fourteen days after discovery of the error or after the error should have reasonably been discovered.

E. Complaints.

1. Individuals may file a complaint alleging noncompliance with this section by an officeholder by submitting the matter to the ethics review commission in the same manner as provided in Section 2.92.160 of this chapter.

2. If the city clerk receives a written complaint alleging noncompliance with this section or if the city clerk determines that a required report of a candidate, officeholder or political committee has not been filed by the deadline imposed by this section or state law, the city clerk shall forward this information to the city attorney for investigation and appropriate enforcement action or submission to the ethics review commission, if warranted.

F. Severability. It is the intent of the city that this section shall comply in all respects with applicable provisions of the United States Constitution, the Texas Constitution, and the charter of the city. If any provision of this section is declared by a court of law to be illegal, void, invalid, or unconstitutional or in violation of the City Charter, such holding shall not affect the validity of the remaining portions of this section, and such remaining portions shall remain in full force and effect.
(Ord. No. 19139, § 1, 2-16-2021)

2.92.080 Disclosure of campaign contributions and donations.

A. The following definition applies to these terms as used in this section: "Contribution" and "contributor" are as defined in this chapter, and shall include, but not be limited to cash, loans, offsets to expenditures, in-kind contributions, donations, and gifts. "Donation" means cash and the value of any in-kind contributions or gifts to the council member for use by their office or in their district. The term "donor" includes an individual and spouse, a business entity, or and individual who owns a business entity in whole or in part, or is operated by the individual, that is the subject of a council agenda item. "Benefiting" as used in this section shall include but not be limited to any contract, bid award, franchise, permit, zoning or rezoning, and other award that council will vote on.

B. Reporting of Contributions and Donations by Council Member. Council members must verbally disclose the amount of any contributions or donations received totaling an aggregate of five hundred dollars or more prior to discussion or vote on any council item benefiting the contributor or donor. This requirement includes any contribution received at any time during the council member's campaign(s) or term(s) of office for city council. Such member shall file a written notation with the city clerk to be included with the agenda backup documentation. This disclosure shall be recorded in the minutes of the meeting.

C. Reporting of Contributions and Donations by Contributors. No later than one week prior to the relevant council meeting, a donor or contributor benefiting from an agenda item, and who has contributed or donated an accumulated total of five hundred dollars or more to any current member of city council or to the city through their office for use by the member's office or in their district at any time during their campaign(s) or term(s) of city office shall notify the city of the amount and to whom. It shall be the responsibility of the contributor or donor to report the contribution so the notice of the contribution is posted on the city council agenda with the posting for the relevant item.

D. These requirements shall apply to all meetings of the city council.

E. A member of the city council, or any candidate accepts a campaign contribution from a contributor of five hundred dollars or more, shall report the amount and the donor by an item for notation on the consent agenda of a city council meeting within thirty days of the date of such contribution by submitting a memo to the city clerk no later than noon on the Wednesday one week prior to the relevant city council meeting.

F. No later than thirty calendar days after the end of each fiscal year, each member of council shall file a report listing all campaign contributions and donations to the city for use by their office received during that fiscal year, to include the identity and address of each contributor or donor, and the total amount received from each contributor or donor.

G. No action of the council which is otherwise legal shall be invalidated merely by reason of the disclosure of a campaign contribution by a member of the city council or the failure of a member to disclose a campaign contribution or donation.
(Ord. No. 19139, § 1, 2-16-2021; Ord. No. 019581, § 1, 12-12-2023; Ord. No. 019620, § 2, 4-23-2024)

2.92.090 Ethics training.

A. This subsection applies to all city officers.

1. Each officer shall complete the courses of training regarding the regulations and requirements of Chapters 2.92 and 2.94 of the City Code, as provided herein.

2. Each officer shall complete an initial course of training within ninety days after the effective date of this chapter.

3. Each board, committee and commission member shall complete an initial course of training within ninety days after the effective date of this chapter.

4. Each officer taking office for the first time on and after shall complete the course of training within sixty days after taking the oath of office.

5. Each board, committee and commission member who is appointed to any board, committee or commission on and after January 1, 2013, and who has not completed the initial course of training or a refresher training course within the three years prior to the date the person takes the oath of office, shall complete the initial course of training within ninety days after the date the person takes the oath of office.

6. Each officer shall thereafter complete refresher training courses as provided in subsection (C).

B. This subsection applies to all city employees.

1. Each city employee shall complete the courses of training regarding the regulations and requirements of Chapters 2.92 and 2.94 of the City Code, as provided herein.

2. All employees shall complete an initial course of training as part of each employee's participation in a new employee orientation, as established by the city manager or his designee.

3. Each employee shall thereafter complete refresher training courses as provided in subsection (C), or as otherwise directed by the city manager.

C. The courses of training required under this section shall be provided and completed as follows:

1. Each officer and employee shall complete the initial course of training as provided in subsections (A) and (B), as applicable.

2. Each officer shall thereafter complete a refresher training course that will be offered during every third year subsequent to the initial course of training provided during calendar year 2020, with the first refresher course of training to be offered during calendar year 2023.

3. Each employee shall thereafter complete a refresher training course as provided in subsection (C)(2), or as otherwise directed by the city manager.

4. An officer or employee who has completed his initial course of training within the twelve months prior to the start of a calendar year in which refresher training is required is not required to complete the refresher training offered during that immediately-following calendar year, but shall be required to complete all subsequent refresher training courses, as provided herein.

D. The city manager shall ensure that the training required by this section is made available.

1. The training course and refresher training courses shall be developed and provided by the city manager or his designees, and be subject to approval as to form by the city attorney or his designees.

2. The training courses must include instruction in:

a. Requirements relating to the standards of conduct imposed under this chapter, including, but not limited to, the acceptance of gifts;

b. State penal and other laws that relate to ethical conduct;

c. Reporting and disclosure requirements of the ethics ordinance and state law;

d. Basic requirements of the lobbying ordinance and facilitating compliance by others with that chapter;

e. Penalties and other consequences for failure to comply with the ethics and lobbying ordinances; and

f. The application of the ethics ordinance to unique situations relating to the board, commission or committee that the officer has been appointed to, or the application of the ethics ordi-

nance to unique situations relating to the type of work that an employee does or the department he/she is assigned to.

3. The courses of training required under this section may be offered through live instruction or through the use of a video-recorded presentation.
(Ord. No. 19139, § 1, 2-16-2021)

Article III. Ethics Review Commission

2.92.100 Purpose and mission.

A. In order to assist the city council, an ethics review commission of nine members is hereby established.

B. The ethics review commission shall serve as an advisory body to the mayor and city council on matters concerning ethics in government of the city.
(Ord. No. 19139, § 1, 2-16-2021)

2.92.110 Membership.

A. All members of the ethics review commission shall be residents of the city. Members cannot be city employees, hold any city elected office, or be a candidate for any city elected office. A member may contribute to a city political campaign as long as they are compliant with the City Charter.

B. No member of the ethics review commission shall be related within the third degree of consanguinity or within the third degree of affinity to a member of the city council or the city manager.

C. Members shall be appointed for a two-year period, except that appointments made to fill vacancies created during a term shall only serve for the remainder of the term. The term of each appointee shall commence on February 21st and shall terminate on February 20th at the conclusion of the respective term. Terms shall be staggered in the following manner:

Mayor's appointee	Terms expire in even numbered years
District 1 appointee:	Terms expire in even-numbered years
District 2 appointee:	Terms expire in odd-numbered years
District 3 appointee:	Terms expire in even-numbered years
District 4 appointee:	Terms expire in odd-numbered years
District 5 appointee:	Terms expire in odd-numbered years
District 6 appointee:	Terms expire in even-numbered years
District 7 appointee	Terms expire in even-numbered years
District 8 appointee	Terms expire in odd-numbered years

(Ord. No. 19139, § 1, 2-16-2021)

2.92.120 Jurisdiction.

The ethics review commission shall have jurisdiction to review alleged violations of Article II (Standards of conduct) of this chapter by officers, candidates, and political committees that occurred within two years of the complaint being filed. Additionally, the ethics review commission shall have jurisdiction over contributors and donors only to review alleged violations of Section 2.92.080 by contributors or donors who have obligations under that section.
(Ord. No. 19139, § 1, 2-16-2021; Ord. No. 019581, § 2, 12-12-2023)

2.92.130 Duties.

A. The ethics review commission shall meet as necessary to accomplish the following duties. In order to conduct a meeting there must be a quorum of five members of the ethics review commission.

1. Review, evaluate and provide recommendations on issues as requested by the city council.

2. Provide recommendations for the city council regarding orientation programs or procedures for officers and volunteers focusing on education of the importance of ethics in city government and on the provisions of this chapter.

3. Provide information to the community on ethics in city government, as may be necessary for the promotion of the public trust.

4. Issue advisory opinions in the manner set forth in Section 2.92.150 below.

5. Review, evaluate and issue determinations, impose sanctions and provide recommendations to the city council on complaints regarding officers, candidates, political committees, and for compliance with City Code Section 2.92.080, donors or contributors described therein.

6. Provide information on the disposition of specific issues by referring to minutes of commission meetings and ethics review commission reports.

7. Periodically review and propose changes to this chapter and the forms utilized pursuant thereto.

8. Develop guidelines and procedures to promote compliance with this chapter.

9. Prepare written annual reports for the city council. Submit additional reports as needed.

10. Any other duties or assignments that may be directed by city council.

(Ord. No. 19139, § 1, 2-16-2021; Ord. No. 019581, § 3, 12-12-2023)

2.92.140 Procedures.

A. The ethics commission will hold their first meeting every year on or about the first business day after April 1st. At this meeting, they will select a chair and vice chair and adopt rules for their proceedings, which shall be subject to approval by city council. The rules that are adopted must be consistent with the City Charter, city ordinances, and the ethics code, and shall, to the extent possible, be like the rules set up by city council for its own meetings.

B. The chair of the ethics review commission shall make appointments to the advisory opinion panel as needed to issue advisory opinions to officers upon written request. The advisory opinion panel shall never have less than three members of the ethics review commission.

C. The ethics review commission shall be assigned staff by the city manager to assist in its duties, as the city manager and city council deems necessary. In the case that the ethics review commission is hearing a complaint against a member of city council or the city manager, outside legal counsel may be retained when requested by the city attorney at any time during the ethics proceedings to perform his or her duties under Section 2.92.170 of this Code and any other duties for the remainder of the ethics proceeding.

D. The ethics review commission may consolidate into one complaint the following:

1. Multiple complaints against the same officer that involve the same incident; or

2. Multiple complaints against the same officer that involve the same alleged misconduct.

(Ord. No. 19139, § 1, 2-16-2021)

2.92.150 Advisory opinions.

A. By written request to the city attorney, any officer may request an advisory opinion regarding whether his or her proposed conduct would violate this chapter. Within thirty days of receiving the written request, the city attorney shall call a meeting of the advisory opinion panel to review the request. The panel shall meet to confer and issue and advisory opinion. The panel, however, showing a good cause, may decline to issue and advisory opinion or refer the matter to the whole ethics review commission.

B. The city manager may request an advisory opinion regarding the proposed action or conduct of one or more employees by submitting a written request to the city attorney. The city will issue an opinion within thirty days of receiving the advisory opinion request, unless the city attorney, showing good cause, declined to issue an advisory opinion.

C. A person who in good faith acts in accordance with a written advisory opinion issued by the advisory opinion panel or ethics review commission cannot be found to have violated this chapter by engaging in conduct approved in the advisory opinion if:

1. The person requested the issuance of the opinion; or

2. The request for an opinion fairly and accurately disclosed all relevant facts necessary to render an opinion.

(Ord. No. 19139, § 1, 2-16-2021)

2.92.160 Filing a complaint.

A. Any resident of the city (including a member of the ethics review commission), or natural person conducting business with a city who believes a city employee has violated Article II of this chapter may file a sworn complaint to the city's human resources department or to the employee's supervisor.

B.1. Any resident of the city (including a member of the ethics review commission) or natural person conducting business with the city who believes an officer, candidate, political committee, has violated Article II of this chapter within the last two years, may file a sworn complaint with the city clerk.

2. Any resident of the city (including a member of the ethics review commission) or natural person conducting business with the city who believes a contributor, donor, individual, or business entity has violated City Code Section 2.92.080 within the last two years, may file a sworn complaint with the city clerk.

C. Any resident of the city (including a member of the ethics review commission) or natural person conducting business with the city who believes the city attorney, the city manager or the chief internal auditor has violated Article II of this chapter within the last two years, may file a sworn complaint with the mayor and the mayor pro tempore.

D. A complaint filed under this section must be in writing and under oath and must include:

1. The name of the complainant;

2. The telephone number and the mailing address and/or electronic mail address of the complainant;

3. Proof of residence or that the complainant is conducting business with the city;

4. The name of each person complained about;

5. The position or title of each person complained about;

6. The nature of the alleged violation, including the specific provisions of this chapter alleged to have been violated;

7. A statement of the facts explaining the alleged violation and the dates on which or period of time in which the alleged violation occurred; and

8. All other documents or material relating to the alleged violation that the complainant can provide; a list of the documents or materials that are relevant to the alleged violation but are not in possession of the complainant or are unavailable to the complainant, including the location of such documents or materials;

9. An affidavit stating that the information contained in the complaint is either true and correct or that the complainant has good reason to believe and does believe that the facts constitute a violation of this chapter. If the complaint is based on information and belief, the complainant shall state the source and basis of the information and belief. Each complainant, other than a member of the ethics review commission, shall swear to the facts by oath before a notary public or other person authorized by law to administer oaths under penalty of perjury. The complaint must state on its face an allegation that, if true, constitutes a violation of this chapter that is administered and enforced by the commission.

(Ord. No. 19139, § 1, 2-16-2021; Ord. No. 019581, § 4, 12-12-2023)

2.92.170 Complaint review.

A. The city clerk will review a filed complaint to ensure it is properly sworn and complete. If the complaint is missing required information, the city clerk will send the complaint back to the complainant through regular mail and/or electronic mail, and the complainant will have twenty-one days to correct the complaint and refile it otherwise the city clerk may reject the complaint. If the complaint is complete the city clerk will forward the complaint to the city attorney and the

respondent within seven days. If the city attorney refers the complaint to the ethics review commission under subsection 2.92.170(B)(2) below, respondent has fourteen days from notice to respondent of such to file a response with the city clerk.

B. Within twenty-one days of receiving the complaint from the city clerk, the city attorney will either:

1. Dismiss the complaint because it falls outside the ethics review commission's jurisdiction. If a complaint is dismissed in this manner the decision of the city attorney will be final. The city attorney shall provide a copy of the dismissal to the ethics review commission and to the complainant through regular mail or electronic mail; or

2. Refer the complaint to the ethics review commission. Once this occurs, the city attorney may confer with the chair of the ethics review commission and vice-versa about any procedural matters regarding the complaint.

(Ord. No. 19139, § 1, 2-16-2021; Ord. No. 019581, § 5, 12-12-2023)

2.92.180 Ex parte communications.

A. It shall be unlawful to engage in any of the following ex parte communications regarding a complaint that has been filed pursuant to this chapter:

1. For the complainant, the respondent, or any person acting on their behalf, to engage or attempt to engage directly or indirectly about the subject matter or merits of a complaint in ex parte communication with a member of the ethics review commission, a member of the city council, or any known witness to the complaint; or

2. For a member of the ethics review commission, to knowingly entertain an ex parte communication prohibited by subsection (A)(1) above, or to communicate about any issue of fact or law relating to the complaint directly or indirectly with any person other than a member of the ethics review commission.

B. The city attorney or his/her designee conferring with the chair or members of the ethics review commission on procedural matters regarding a complaint shall not be considered prohibited ex parte communications.

C. If a member of the ethics review commission violates this section of the chapter, they shall recuse themselves from any further proceedings regarding the complaint. Should the commission not reach a quorum because members recused themselves, then the city council shall appoint temporary members to the commission to hear the complaint or the chair of the ethics review commission shall appoint a panel with the remaining eligible members to complete the hearing and disposition process. Temporary membership to the ethics review commission expires upon the disposition of a complaint and may only be reinstated by city council if the complaint is to be reconsidered pursuant to the provisions in this chapter.

(Ord. No. 19139, § 1, 2-16-2021)

2.92.190 Hearing.

A. If a complaint is referred to the ethics review commission, the commission must schedule a hearing and provide copies of all relevant documentation to the members of the commission, the complainant, and the respondent within thirty days of being referred the complaint. While the complaint is pending members of the ethics review commission are prohibited from discussing the complaint or matters of the hearing with any officer, the city manager, or other employees of the city, or any other person whether that person is associated with the complaint or not.

B. For all hearings, the person submitting the complaint and any persons named in the complaint will be sent written notice of the date, time, and place of the hearing by the ethics review commission through regular mail and/or electronic mail so each party may attend.

C. If either the complainant or the respondent, or their attorneys, if any, are unable to attend any scheduled hearing, they may request a continuance of the hearing by submitting a written request for continuance to the ethics review commis-

sion through regular mail and/or electronic mail at least five days before the scheduled hearing. The complainant and the respondent, including their attorneys, shall receive one automatic continuance. Any other requests for continuance shall be delivered in writing to the ethics review commission through regular mail and/or electronic mail, and the chair will determine if a continuance will be granted at the next scheduled meeting. The request for continuance must be received at least five days before the scheduled hearing. The commission shall consider if granting continuance promotes fairness to all parties and if there is good cause shown in the request for continuance.

D. The complainant, respondent, either of their attorneys, or any witnesses that have been requested to appear at the hearing may raise questions regarding the proceedings before the ethics review commission or any preliminary issues regarding the scheduled hearing to the attention of the city attorney. The city attorney or his or her designee shall resolve the matters to the extent possible, and if necessary, consult with the commission to determine the appropriate resolution at the commission's scheduled meeting.

E. Only eligible commissioners of the ethics review commission will hear matters referred to the commission as a whole. If a commissioner recuses himself or herself, they will refrain from voting on the matter and from discussing the matter at any time with other commissioners of the ethics review commission. A commissioner shall not be eligible to hear issues under this chapter and shall recuse himself or herself in the following situations:

1. Where, because of familial relationship, employment, investments, or otherwise, his or her impartiality might be questioned;

2. When the commissioner issued the complaint;

3. When the complaint involved the member of city council who nominated him or her for a seat on the ethics review commission;

4. When the commissioner is not present during any portion of the hearing of the complaint. The commissioner shall recuse himself or herself from further hearing and matters regarding the complaint and will no longer be eligible to participate in the disposition of the complaint; or

5. When the complaint involved the member of the city council in whose campaign the commissioner, if during the last twelve months substantially participated by acting as a fundraiser or leader in the campaign, or contributing five hundred dollars or more.

F. General rules for the hearing.

1. The ethics review commission may establish time limits and other rules relating to the participation of any person in the hearing for the purpose of establishing an orderly and fair hearing process for all participants. Such rules shall include determining parameters for opening and closing statements, the roles of the complainant and the respondent, limitations regarding testimony for non-relevant or cumulative witnesses, and the presentation and direct questioning of witnesses by the respondent, complainant, or their attorneys.

2. The respondent and the complainant have the right to attend the hearing, the right to make a statement and present witnesses pursuant to the rules set by the commission for the hearing, and the right to be accompanied by legal counsel or advisor. The respondent and the complainant may be advised by their legal counsel or advisor during the course of the hearing. The legal counsel or advisor of the complainant may not speak on behalf of the complainant, except to represent the complainant while testifying. The respondent, the complainant, or their legal counsel or advisor, may not personally question or cross-examine witnesses, except if the commission has granted them permission to do so.

3. As provided by the City Charter, the ethics review commission shall have the authority to request witness testimony and production. The commission chair or his/her designee on behalf of the commission, shall have the authority to request any and all necessary assistance from city council for the purpose of compelling testimony,

including subpoenaing witnesses in accordance with the procedures set out by the City Charter and city ordinances. The commission will have the authority to bring matters to city council through agenda items properly drafted by the city attorney or his/her designee.

4. The city attorney and his/her designee will disclose any information or evidence actually known to them that would validate and/or negate the alleged violation of this chapter to the ethics review commission and to the respondent.

5. The ethics review commission is not bound by the rules of evidence, but will rely on evidence that a reasonably prudent person commonly relies on in the conduct of their personal affairs. The commission shall hear relevant evidence, but shall not rely on hearsay.

(Ord. No. 19139, § 1, 2-16-2021)

2.92.200 Disposition.

A. After hearing the complaint, the ethics review commission will issue a decision within thirty days based on the information available to the commission through the hearing process. The ethics review commission will:

1. Dismiss a complaint because no violation of this chapter has occurred; or

2. Find that a violation of this chapter has occurred and either find that a sanction is not appropriate, or issue a sanction.

B. If after hearing the issues, the ethics review commission dismisses the complaint or finds that no violation of the ordinance occurred, the commission shall create a written report of their findings or dismissal, and such report shall be filed with the minutes of the meeting in the office of the city clerk, and a copy of the report shall be sent to the parties associated with the complaint by regular mail and/or electronic mail.

C. At this time, the commission may determine if the complaint was frivolous. If the commission determines that a complaint is frivolous, they may issue a sanction provided in subsection D below. If within one year, a complainant is found to have filed more than one frivolous complaint, the complainant will not be able to file further complaints for the following two years. If a complainant who is banned from filing a complaint does so within their prohibited period, the city clerk may refuse to accept the complaint and will notify the commission so an additional two years can be added to the current prohibition.

D. If after hearing the issues, the ethics review commission determines through clear and convincing evidence that a violation of this chapter has occurred, then the ethics review commission may issue on of the following sanctions:

1. Letter of notification. A letter of notification may be issued when the ethics review commission finds that a violation of this chapter was clearly unintentional. A letter of notification may advise the person to whom the letter is directed of any steps to be taken to avoid future violations.

2. Letter of admonition. A letter of admonition may be issued when the ethics review commission finds that the violation of this chapter was minor and/or may have been unintentional, but where the circumstances call for a more substantial response than a letter of notification.

3. Letter of reprimand. A reprimand may be issued when the ethics review commission finds that a violation of this chapter was committed intentionally or through disregard of this chapter.

4. Recommend removal from office. In addition to a letter of reprimand, removal from office may be recommended to the city council for action when the ethics review commission finds that a serious or repeated violation of this chapter was committed by an officer intentionally or through culpable disregard of this chapter.

5. Issue a fine not to exceed five hundred dollars payable to the city comptroller within thirty days of such order by the ethics review commission.

E. If the ethics review commission votes to impose a sanction of a letter of notification, a letter of admonition, or a letter of reprimand, the commission shall prepare a written report of their findings, which shall be filed with the minutes of the meeting in the office of the city clerk. The city

attorney shall draft the letter of sanction per the direction of the commission, file a copy of the letter in the employment file of the person receiving the sanctions where it shall remain as a permanent record, and send a copy of the letter to said person by both regular mail and certified mail, return receipt requested, and/or by electronic mail.

F. If the ethics review commission recommends the imposition of the sanction of removal from office, it shall prepare a written report containing its recommendation. The report will be sent to the city clerk who shall, within fourteen days of receipt, place the matter on the city council agenda for discussion and action by the city council regarding the recommendation of the ethics review commission. The final authority to carry out a recommendation for removal from office shall be with the city council and shall take place in conformity with any other law or requirements for such removal. The recommendation(s) of the ethics review commission may be accepted, rejected, modified or recommitted to the commission for further action or clarification by city council. The city clerk shall, within fourteen days of the date of any city council action taken on a complaint, forward a copy of such action to the chair of the ethics review commission.
(Ord. No. 19139, § 1, 2-16-2021; Ord. No. 019581, § 6, 12-12-2023)

2.92.210 Reconsideration.

If the ethics review commission determines a violation of this chapter has occurred and imposes sanctions, the person who has received the sanctions may petition the ethics review commission to reconsider the matter only if there is newly discovered evidence which was not presented to the ethics review commission during the original proceedings. The person who was sanctioned may request the reconsideration by providing written notice to the city clerk within fourteen days of the date on the ethics review commission's written notice regarding the sanctions. If the sanctioned party does not provide written notice to the city clerk on or before the expiration of the 14th day following the date of the written notice of the sanctions, the decision of the ethics review commission shall be final and no longer eligible for reconsideration.
(Ord. No. 19139, § 1, 2-16-2021)

Chapter 2.94

REGULATION OF LOBBYING ACTIVITIES

Sections:

2.94.010 Purpose.

2.94.020 Definitions.

2.94.030 Applicability.

2.94.040 Persons required to register and eligibility.

2.94.050 Exceptions.

2.94.060 Registration.

2.94.070 Activity reports.

2.94.080 Timeliness of filing registrations and reports.

2.94.090 Restricted activities.

2.94.100 Appearance.

2.94.110 Chapter construction.

2.94.120 Penalty.

2.94.130 Disqualification from contracting.

2.94.010 Purpose.

The city council declares that the operation of responsible democratic government requires that the fullest opportunity be afforded to the people to petition their government for the redress of grievances and to express freely to any city officials their opinions on pending municipal questions and on current issues; and that to preserve and maintain the integrity of the governmental decision-making process in the city, it is necessary that the identity, expenditures, and activities of certain persons who engage in efforts to influence a city official on matters within their official jurisdictions, either by direct communication to the official, or by solicitation of others to engage in such efforts, be regulated and be publicly and regularly disclosed. (Ord. 16300 § 2, 2006)

2.94.020 Definitions.

In this chapter:

"City official" means the mayor, a council member, a city manager or a member of board, commission, and committee set forth in Section 2.94.030 of this chapter.

"Compensation" means money or other tangible thing of value that is received, or is to be received in return for, or in consideration of lobbying services rendered, or to be rendered. Compensation shall not include compensation paid to an individual regularly employed by a person if the compensation paid to the individual is ordinarily paid regardless of whether the individual engages in lobbying activities and lobbying activities are an incidental part of the individual's regular responsibilities to the person paying the compensation. Compensation shall not include the financial gain that a person may realize as a result of the determination of a municipal question, unless that gain is in the form of a contingent fee. Compensation shall be considered received on the date on which the contract or agreement for the compensation is made or on the date lobbying commences, whichever is later.

"Discretionary contract" means any contract other than those which by law must be awarded on a low bid basis. Discretionary contracts do not include those contracts subject to Section 252.022(a)(7) of the Texas Local Government Code or those contracts not involving an exercise of judgment or choice.

"Expenditure" means a payment, distribution, loan, advance, reimbursement, deposit or gift of money or anything of value, including a contract, promise or agreement to make an expenditure, regardless of whether the promise or agreement is legally enforceable. Expenditure shall not include an expenditure paid to an individual regularly employed by the individual engaging in lobbying activities and lobbying activities are an incidental part of the individual's regular responsibilities to the person paying the expenditure.

"Gift" means the conferring of a benefit as defined in Section 2.92.030(A) of this chapter.

"Immediate family" means a spouse residing in the person's household and dependent children.

"Lobby" or "lobbying" means the solicitation of a city official, by private interview, postal or telephonic communications, or any other means other than public expression at a meeting of city

Title 3

REVENUE AND FINANCE

Chapters:

3.04	**Property Taxes**
3.08	**Sales Tax**
3.12	**Hotel Room Tax**
3.16	**Tax Incremental District**
3.20	**Small Business Assistance**
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Chapter 3.04

PROPERTY TAXES

Sections:

3.04.015 Tax code—Applicable.

3.04.025 Additional penalty.

3.04.035 Exemption—Historically significant sites.

3.04.040 Exemption—Residence homestead.

3.04.042 Exemption—Child-care facilities.

3.04.045 Escrow accounts.

3.04.050 Delinquent taxes—Installment payments.

3.04.070 Delinquent taxes—Installment agreement forms.

3.04.080 Seizure and sale of property for delinquent taxes.

3.04.090 Certificates.

3.04.015 Tax code—Applicable.

A. This chapter is subject to the provisions of Title 1, Property Tax Code, V.T.C.A. Tax Code. The city shall possess all rights and powers conferred on taxing units by such code to the maximum extent permitted by law. Nothing herein shall constitute a waiver of any such right or power.

B. The taxes, penalties and interest provided for in this chapter are subject to the provisions of V.T.C.A. Tax Code Chapter 32 (Tax Liens and Personal Liability) and Chapter 33 (Delinquency). (Ord. 14544 § 2 (part), 2000)

3.04.025 Additional penalty.

A. Pursuant to Section 33.07 of the Texas Tax Code, taxes that become delinquent on or after February 1st of a year, but not later than May 1st of that year, and that remain delinquent on July 1st of the year in which they become delinquent, incur an additional penalty of fifteen percent of the taxes, penalty and interest due to defray costs of collection.

B. Pursuant to Section 33.08 of the Texas Tax Code, taxes that become delinquent on or after June 1st of the year in which they become delinquent shall incur an additional penalty of fifteen percent of the amount of the taxes, penalty and interest due to defray costs of collection. (Ord. 14544 § 2 (part), 2000)

3.04.035 Exemption—Historically significant sites.

A. Definitions.

1. "Assessed value of the site prior to preservation" means the value assessed by the central appraisal district as of the date the appraisal role is certified of the current tax year in which the applicant receives an approved certificate of appropriateness issued by the historic landmark commission or administratively approved by the historic preservation officer.

2. "Applicant" means the property owner(s) requesting a tax exemption pursuant to this section.

3. "Historic landmark commission" also referred to as the "HLC," means the City of El Paso Historic Landmark Commission created under Title 2 of the El Paso City Code.

4. "Historic preservation officer" also referred to as "HPO," means the person or persons designated by the city manager for the City of El Paso granted authority and duties as designated under Title 2 of the El Paso City Code.

5. "Historically significant site in need of tax relief to encourage preservation," also referred to as "site," means a structure, together with the land necessary for access and use of the structure in need of restoration or rehabilitation and which is designated as one or more of the following:

a. Listed on the National Register of Historic Places;

b. Located in a National Register Historic District and certified by the Secretary of Interior as being of historic significance to the district;

c. Designated as a Recorded Texas Historical Landmark or a state archeological landmark by the Texas Historical Commission;

d. Designated as a historic landmark by the City of El Paso as provided in Title 20 of this Code;

e. Located in a historic district and designated by council under Section 20.20.040 of this Code as a contributing property; or

f. Located in a historic district or an area of potential effect designated by the City of El Paso and the site is shown to be a historically significant site in need of tax relief to encourage its preservation.

6. "Rehabilitation" means the act or process of returning a building, object, site or structure to a state of utility through repair, remodeling or alteration that makes possible an efficient contemporary use while preserving those portions or features of the building, object, site or structure that are significant to its historical, architectural and cultural values.

7. "Restoration" means the act or process of accurately recovering the form and details of a building, object, site or structure and its setting as it appeared at a particular period of time by means of the removal of later work or by the repair or replacement of missing earlier work.

8. "Reviewing authority" means the dity development director or designee for the properties for which this ordinance is applicable that are within the boundaries of an area designated by the city council as an area of potential effect and which are not designated as a historic landmark pursuant to Chapter 20.20 of this Code other than the area of potential effect designated as the Union Plaza area, and means the historic preservation officer for the area of potential effect designated as the Union Plaza area and all other properties for which this ordinance is applicable.

B. Application process.

1. Applicants requesting a tax exemption pursuant to this section shall submit an application on the prescribed form to the reviewing authority, prior to starting any restoration or rehabilitation work on the site in which an exemption request is made, in order to allow the reviewing authority to obtain the appropriate information to make a determination as to whether the site for which the tax exemption is requested meets all applicable criteria for said exemption. The owner of a property located in an area of potential effect, may, prior to the submission of a complete application, request input and guidance from the HPO regarding the potential qualification of the property to be designated as a historically significant site. The provision of such input and guidance shall in no way bind or obligate the city or the HPO to find, upon the completion and submission of an application, that a property is in fact historically significant, but is meant only to offer guidance to a potential applicant with a property in an area of potential effect, where some but not all properties may qualify as being historically significant.

2. An application shall be signed and sworn to by an applicant and shall include the following:

a. Legal description of the property, including the description of the site if less than the entire property, proposed for tax exemption;

b. Affidavit describing the historic significance of the site in need of tax relief;

c. Final complete set of plans for the site's restoration or rehabilitation including the proposed restoration or rehabilitation for the exterior and interior of the site. All proposed plans must address restoration or rehabilitation of both the exterior and the interior unless the applicant provides an inspection report that shows that the interior fully complies with all applicable code requirements and is not in need of restoration or rehabilitation, in which case the plans need only address the exterior of the site;

d. Detailed estimate of costs for the restoration or rehabilitation project work;

e. Proposed construction schedule for the project, not to exceed three years, that includes the projected construction start and completion dates of the restoration or rehabilitation;

f. Written authorization to allow city officials to enter and inspect the site at reasonable times to determine that the site in question is in substantial need of restoration or rehabilitation, and to allow city officials to enter and inspect the site during

and upon completion of construction, and if the exemption is approved, to allow entry by city officials to inspect the site during the entire time period for which the tax exemption is granted;

g. Detailed statement of the proposed use for the site;

h. Copy of the approved certificate of appropriateness issued by the HLC or the HPO when appropriate, or administratively approved by the HPO when authorized by Chapter 20.20 of this Code;

i. Information that demonstrates how the site demonstrates historic integrity and meets the requirements of subsection A.5. of this section, unless the site only meets the criterion in subsection A.5.f., in which case the site must meet one of the criteria set forth in Section 20.20.050 of this Code, and such building or buildings located on the site must be fifty years old or older;

j. A clear identification of what portion of the property should be eligible for tax relief, including the land necessary for access, if the total property owned by the applicant is greater than the dimensions of the site;

k. Photographs and drawings of the site before rehabilitation, including all protected facades and any other area where rehabilitation will be performed; and

l. Provide any additional information to the reviewing authority that the applicant deems relevant or useful.

3. Each application shall contain sufficient documentation confirming or supporting the information submitted therein. Upon receipt of a completed application, the reviewing authority shall be responsible for processing and administering all requirements of this section.

4. Applications for the tax relief pursuant to this section for sites in areas of potential effect shall not be accepted after August 31, 2018.

C. Determination of eligibility process.

1. The application shall be reviewed by the reviewing authority for completeness and shall not be processed until any missing information is supplied by the applicant and the fee has been received. The reviewing authority shall notify the applicant of any information missing from the application.

2. Upon receipt of a completed application, the reviewing authority shall within thirty days approve or disapprove the eligibility of the site for tax relief pursuant to this section. The reviewing authority shall determine whether all requirements of this section have been fulfilled and make the following determinations:

a. The reviewing authority shall verify that all required showings under subsection B. of this section have been made and that satisfactory proof has been submitted;

b. The reviewing authority shall verify that the cost estimates for the restoration or rehabilitation work meets or exceeds twenty percent of the assessed value of the site prior to preservation; and

c. The reviewing authority shall determine and declare what portions of the property constitute the site that will benefit from the tax exemption allowed by this chapter.

3. If the reviewing authority determines that all of the application requirements have been fulfilled, that the cost estimate meets or exceeds twenty percent of the assessed value of the site prior to preservation, the reviewing authority shall designate the declared site as a historically significant site in need of tax relief to encourage its preservation, and approve the eligibility of the site for tax relief pursuant to this section.

4. The reviewing authority shall inform the applicant in writing whether the application has been approved and designation made, or disapproved; and if disapproved, the reviewing authority shall detail the reason(s) for disapproval.

5. If the reviewing authority disapproves the application, an applicant may appeal the reviewing authority's decision as follows.

a. If the property is within the boundaries of an area designated by the city council as an area of potential effect and the property is not designated as a historic landmark pursuant to Chapter 20.20 of this Code, the applicant may appeal to the city

council by filing a written appeal with the city clerk within fifteen days after the disapproval by the reviewing authority. Following a public hearing to be held within thirty days of the filing of a notice of appeal, the city council may uphold or overturn the decision of the reviewing authority and determine that all of the application requirements have been fulfilled and that the cost estimate meets or exceeds twenty percent of the assessed value of the site prior to preservation, and designate the site as a historically significant site in need of tax relief to encourage its preservation and declare the eligibility of the property for tax relief pursuant to this section. The decision of the city council shall be final.

b. For all other properties affected by this ordinance, the applicant may appeal to the HLC by filing a written appeal with the reviewing authority within fifteen days after the disapproval by the reviewing authority. Following a public hearing to be held within thirty days of the filing of such notice of appeal, the HLC shall hear all evidence presented and may uphold or overturn the decision of the reviewing authority and if the HLC finds that the application meets the provisions in this section, issue a determination that all of the application requirements have been fulfilled, designate the site as a historically significant site in need of tax relief to encourage its preservation, and declare the eligibility of the property for tax relief pursuant to this section. The decision of the HLC shall be final.

D. Historic structure preservation tax exemption.

1. If an applicant's site is granted the tax exemption allowed in Section 11.24 of the Texas Tax Code, the city's portion of the assessed ad valorem taxes shall be based on the assessed value of the site prior to preservation, and shall not increase based on the following formula, which shall constitute the amount and time period of the tax exemption:

a. If the value of the improvements is equal to fifty percent or more of the assessed value of the site prior to preservation, the city's portion of the assessed ad valorem taxes shall not be increased for a period of ten years.

b. If the value of the improvements is equal to between forty percent and 49.99 percent of the assessed value of the site prior to preservation, the city's portion of the assessed ad valorem taxes shall not be increased for a period of eight years.

c. If the value of the improvements is equal to between thirty percent and 39.99% of the assessed value of the site prior to preservation, the city's portion of the assessed ad valorem taxes shall not be increased for a period of six years.

d. If the value of the improvements is equal to between twenty percent and 29.99 percent of the assessed value of the site prior to preservation, the city's portion of the assessed ad valorem taxes shall not be increased for a period of four years.

e. If the value of the improvements, for contributing properties located within the downtown historic district only, is equal to fifty percent or more of the assessed value of the site prior to preservation, the historic structure preservation tax exemption shall be for a period of fifteen years.

2. The exemption shall begin on the first day of the first tax year after verification of completion pursuant to the requirements of this section.

3. A subsequent owner may claim the tax exemption granted by city council for the duration previously granted. A subsequent owner must submit an application for claiming a tax exemption for the remainder of the initial exemption granted within one hundred eighty days of taking ownership of the tax exempt property. A subsequent owner must abide by the procedures set forth in subsection F.2. of this section.

4. The restoration or rehabilitation project may be completed in phases in accordance with the construction schedule approved by the reviewing authority as part of the application for tax exemption. The tax exemption shall not be approved by the city council until all phases of the project are completed in accordance with the approved certificate of appropriateness. A project

may be phased over a maximum of a three-year period, and no extensions of time shall be authorized.

E. Verification process.

1. Upon completion of the restoration or rehabilitation project at the site pursuant to an approved certificate of appropriateness and the application for tax exemption, the applicant shall submit a sworn statement of completion of the project to the reviewing authority verifying completion of the work. The applicant's statement shall state the date of completion and shall include a copy of all receipts for labor, materials, and design services documenting the value of the improvements completed.

2. No later than thirty days from receipt of an applicant's statement of completion, the reviewing authority shall investigate the site and verify that the improvements to the site have been completed in accordance with the approved certificate of appropriateness. The structure shall comply with the applicable zoning regulations for its use and location; and shall comply with Title 18 of the El Paso City Code.

3. The reviewing authority shall examine the documentation submitted by the applicant pursuant to subsection E.1. of this section and determine which, if any, percentile range described in subsection D.1. has been met. Such determination shall be made on the actual value of the improvements, regardless of whether the actual value exceeds or is less than the value of the improvements stated in the plan submitted with the approved application.

4. If the reviewing authority determines that the project is not complete or the work performed is not in accordance with the approved certificate of appropriateness, or the value of the improvements as completed does not meet the twenty percent threshold described in subsection D.1. of this section, then the reviewing authority shall notify the applicant by letter that the verification cannot be made. The reviewing authority shall schedule a hearing within thirty days to allow the applicant to present evidence and argument that all applicable requirements of this section have been met. The reviewing authority shall make a final determination within ten days after the conclusion of the hearing.

5. If the reviewing authority verifies and determines that all applicable requirements of this section have been met, the reviewing authority shall present the application, verification, and other relevant documentation to the city council. The city council shall take appropriate action for the granting of the tax exemption for the site.

6. If the reviewing authority makes a final determination that all applicable requirements of this section have not been met, the reviewing authority shall give written notice to the applicant that the verification cannot be made and that the application will not be presented to the city council for the granting of the tax exemption. The applicant may appeal such a final determination by the reviewing authority to the city council by filing a written appeal with the city clerk within fifteen days after the issuance of the determination. Following a public hearing to be held within forty-five days of the filing of such notice of appeal, the city council shall review and determine whether all of applicable requirements of this section have been fulfilled and if such requirements have been fulfilled, take appropriate action for the granting of the tax exemption for the site. The decision of the city council shall be final.

7. If an applicant does not timely complete the project as prescribed in the schedule attached to the approved application, then the application shall be deemed expired and a new application shall be required; provided however, if the applicant has completed enough of the improvements included in the project such that the value of the completed improvements is equal to twenty percent more of the assessed value prior to preservation, the applicant may request a modification to the certificate of appropriateness so as to only include the completed improvements and submit the sworn statement of completion of the project to the reviewing authority verifying completion of

the work. Such a request shall be processed under this section in the same manner as an original application and statement of completion.

F. Historic structure preservation tax exemption.

1. If the city council grants a tax exemption, the reviewing authority shall notify the central appraisal district in writing of the issuance of the exemption, and the letter shall state the applicable tax year when the exemption shall begin, and based on the value of the site prior to preservation, the amount of the exemption, and the time period for such exemption. Thereafter, the central appraisal district shall provide the site with the designated historic tax exemption for the City of El Paso's portion of taxes owed.

2. Once a site qualifies for a tax exemption per this section, the applicant shall maintain the site and the improvements throughout the time period granted for the exemption in accordance with the certificate of appropriateness and in the same or better condition as when originally verified as complete by the reviewing authority. The reviewing authority shall inspect the site on an annual basis to ensure compliance with this section for the duration of the grant of the tax exemption. If the reviewing authority determines that conditions have changed to make the site noncompliant with the certificate of appropriateness or it has not been maintained in the same or better condition as when originally approved, the reviewing authority shall prepare a report detailing the noncompliance or maintenance deficiencies and notify the applicant in writing that the applicant has sixty days in which to cure the noncompliance or maintenance deficiencies. A copy of the reviewing authority's report shall be provided to the applicant.

3. The reviewing authority shall re-inspect the site after the expiration of the sixty days allowed in subsection F.2. of this section to cure the noncompliance or maintenance deficiencies. If the reviewing authority determines at that time that the site is noncompliant with the approved certificate of appropriateness or it has not been maintained in the same or better condition as when originally approved, the reviewing authority shall schedule a hearing within thirty days to allow the applicant to present evidence and argument that the site is compliant with the approved certificate of appropriateness and is being maintained in the same or better condition as when originally verified as complete by the reviewing authority. The reviewing authority shall make a final determination within ten days after the conclusion of the hearing.

4. If the reviewing authority makes a final determination that the site remains noncompliant with the approved certificate of appropriateness or that it is not being maintained in the same or better condition as when originally approved, the reviewing authority shall give written notice of such finding to the applicant and shall present his determination and findings to the city council.

5. The city council shall hold a hearing and notify the applicant of the date, time and place of the hearing so that the applicant may attend and present evidence of compliance with the certificate of appropriateness and maintenance of the site. The city council shall make a finding, based upon the evidence presented by the reviewing authority and the applicant, whether the site is or is not in compliance with the original certificate of appropriateness, and whether the improvements have or have not been maintained in substantially the same condition as was originally approved in the certificate of appropriateness.

6. Prior to making a final decision, the city council may refer the item to the reviewing authority, to gather further information and report the information to the city council. The applicant may present an alternate plan in order to comply with the certificate of appropriateness, and the city council or may amend and approve the alternate plan and issue an amended certificate of appropriateness as part of a finding that the site is qualified to continue to receive the tax exemption. If the city council finds that the site is not in compliance, then the tax exemption for the site shall cease immediately, and the reviewing authority shall no-

tify the central appraisal district of the date of the termination of the exemption. (Ord. 16884 §§ 1—5, 2008; Ord. 16370 § 1, 2006)
(Ord. No. 17232, § 1, 11-3-2009; Ord. No. 17395, § 2, 8-24-2010, eff. 9-1-2010; Ord. No. 17427, § 1, 10-5-2010; Ord. No. 17806, § 2, 6-5-2012, eff. 6-11-2012; Ord. No. 17846, § 1, 8-7-2012)

3.04.040 Exemption—Residence homestead.

A. Effective January 1, 2025, forty-five thousand dollars of the market value of the residence homestead owned by any person, married or unmarried, including those living alone, who is either (1) under a disability, as defined for purposes of payment of disability insurance benefits under Federal Old-Age, Survivors and Disability Insurance Program or its successor; or (2) sixty-five years of age or older, shall be exempt from all ad valorem taxes hereafter levied by the city for that tax year, as provided by state law.

B. An eligible disabled person who is sixty-five years of age or older may not receive both exemptions from the city in the same year, but may choose either.

C. An exemption shall not, however, be effective in any year unless the owner of the homestead claims the exemption for that year by filing a rendition giving the description of the property, the owner's name, and the day and year of his birth, and stating that he is the owner of the property and it is his residence homestead. In addition, if the owner is claiming an exemption as an eligible disabled person, the owner shall attach to the rendition a written statement from the Social Security Administration indicating that the owner was under a disability for purposes of payment of disability insurance benefits under Federal Old Age Survivors and Disability Insurance or its successor as required by state law. The rendition shall be verified by the affidavit of the owner, or someone authorized by him and having personal knowledge of the facts. In case of doubt about any of the information so given the tax assessor or his deputy may make a reasonable requirement of supporting evidence. (Ord. 16028 §§ 1, 2, 2005; prior code § 8-6)
(Ord. No. 17877, § 1, 9-18-2012; Ord. No. 19200, § 1, 6-22-2021; Ord. No. 019768, § 1, 8-5-2025)

3.04.042 Exemption—Child-care facilities.

A. Effective January 1, 2024, a qualifying child-care facility, as defined by Texas Tax Code Section 11.36, as may be amended, shall be exempt from one hundred percent of ad valorem taxes hereafter levied by the city for that year.

B. To determine eligibility for the property tax exemption outlined in this Section 3.04.042, a child-care facility must comply with the criteria as outlined in Texas Tax Code Section 11.36, as may be amended.

C. Owners of properties used to operate child-care facilities are required to apply for the tax exemption through the appraisal district in accordance with Texas Tax Code Section 11.43, as may be amended.
(Ord. No. 019632, § 4, 5-7-2024)

3.04.045 Escrow accounts.

A. Taxpayers may enter agreements with the city tax assessor collector to make monthly deposits to an escrow account maintained by the city based on the city's estimate of taxes to be imposed by all entities for which the city collects taxes on all items of property for which the taxpayer requests escrow payment.

B. The city will maintain separate records for taxpayer's account.

C. When it prepares tax bills, the city will apply the money in taxpayer's account to taxes on property to which the agreement applies for each taxing entity for which the city collects taxes and deliver a tax receipt to taxpayer along with a refund of any amount in the account in excess of the amount paid.

D. If the amount in the account is not sufficient to pay the taxes in full, the city will apply the amount in the account in proportion to the amount

of taxes imposed by each entity and issue a tax receipt for partial payment and a tax bill for the unpaid amount.

E. Taxpayer may withdraw all, but not less than all, of the amount in the account before October 1st of the tax year or the time the tax bill is prepared, whichever is earlier. (Ord. 12744, 1996)

3.04.050 Delinquent taxes—Installment payments.

Taxpayers who are delinquent on personal or real property ad valorem taxes, as shown by the delinquent tax rolls of the city, may be permitted to enter into installment payment agreements with the city to pay such delinquent taxes, subject to the following conditions:

A. Installment payment schedules shall be set up only in cases of the economic hardship of the taxpayer or under such other circumstances in which such payment shall be in the best interests of the city; provided further, that the facts supporting a determination of hardship or of special benefit to the city shall be documented in writing in the account files kept by the city tax assessor/collector, city attorney, or such other officer as may be authorized by ordinance to collect taxes. The tax assessor may require an initial down payment before or at the time of the execution of such agreement.

B. Each such agreement shall be in writing and shall be signed by the taxpayer or by his or her authorized representative, by the tax assessor/collector, and by the city manager, if applicable as provided in this section.

C. The execution of an agreement to make installment payments constitutes an admission that all the amounts listed are due and owing, and the taxpayer shall be estopped to contest the validity of the assessment at any later time.

D. For delinquent tax accounts of ten thousand dollars or less, the tax assessor/collector shall be empowered to enter into installment payment agreements on behalf of the city, subject to the guidelines set forth in subsections A through C of this section. The tax assessor/collector may not delegate this authority except as permitted by law.

E. For delinquent accounts of over ten thousand dollars, the tax assessor/collector shall be empowered to enter into installment payment agreements on behalf of the city, subject to the guidelines set forth in subsections A. through C. of this section, and such agreements shall additionally be signed by the city manager, or a deputy city manager or the chief financial officer as may be designated by the city manager. The tax assessor/collector may not delegate this authority, except as permitted by law.

F. The term of the installment payment period shall be for the number of months deemed appropriate in each case; provided, that whenever feasible the account shall be paid in full before the next successive delinquency date after the arrangements to pay are made; and further provided, that no installment payment period of more than thirty-six months shall be approved by the tax assessor/collector.

G. All installment agreements are subject to limitations of the State Property Tax Code, as amended, the terms of which are incorporated insofar as the State Property Tax Code is more restrictive as to terms and conditions of installment payments.

H. Interest and penalty shall accrue as otherwise provided by law.

I. Once the city files a suit prior to the execution of an installment agreement, the city may prosecute any pending delinquent property tax suit involving properties subject to an installment payment agreement to judgment. If a judgment is granted in any such suit, the city may defer enforcement of judgment unless the installment agreement is breached. Failure of the taxpayer to make timely payments shall be a breach of the agreement. (Ord. 16014 § 1, 2005: Ord. 13235, 1997; Ord. 10481, 1991; prior code § 8-10)
(Ord. No. 17844, § 1, 7-31-2012; Ord. No. 17958, § 1, 2-19-2013)

3.04.070 Delinquent taxes—Installment agreement forms.

The city attorney shall prepare and review all forms to be used for installment payment agreements entered into under Sections 3.04.050 and 3.04.060. (Prior code § 8-12)

3.04.080 Seizure and sale of property for delinquent taxes.

The city assessor and collector is authorized to enforce the collection of taxes levied on personal property and due the city when such taxes become delinquent, by summary seizure and sale as provided by state law with reference to county tax collectors. (Prior code § 8-5)

3.04.090 Certificates.

The charge for each certificate showing the amount of delinquent taxes, penalties and interest due shall be ten dollars effective September 1, 1987. (Ord. 9145, 1987)

Chapter 3.08

SALES TAX

Sections:

3.08.010 Exemptions—Gas and electricity.

3.08.020 Telecommunication services—Repeal of state exemption—Rate.

3.08.010 Exemptions—Gas and electricity.

A. Effective October 1, 1978, there are exempted from the taxes imposed by the city under the Local Sales and Use Tax Act, the receipts from the sales, production, distribution, lease or rental of, and the use, storage or other consumption within the city of gas and electricity for residential use.

B. For the purposes of this section, the term "residential use" means use in a family dwelling or in a multifamily apartment or housing complex or building or portion thereof occupied as a home or residence.

C. This exemption shall be effective on October 1, 1978, except that the exemption shall not apply to sales of gas and electricity for residential use made during a retailer's regular monthly billing period for a consumer if the regular monthly billing period for the consumer begins before October 1, 1978, but shall apply to each regular monthly billing period beginning on or after October 1, 1978.

D. The city clerk shall forward to the state comptroller of public accounts by United States registered or certified mail a certified copy of this section postmarked on or before September 10, 1978. (Prior code § 8-7)

3.08.020 Telecommunication services—Repeal of state exemption—Rate.

A. 1. For purposes of this section, the sale of telecommunications services is consummated at the location of the telephone or other telecommunications device from which the call or other communication originates. If the point of origin cannot be determined, the sale is consummated at the address to which the call or other communication is billed.

2. The application of the exemption provided for in Article 1066c, Section 4B(a), V.A.T.C.S. is repealed by the city, as authorized by Section 4B(b) thereof.

3. The rate of tax imposed by this section shall be the same as the rate imposed by the city for all other local sales and use taxes as authorized by the legislature of the state.

4. The city clerk shall forward to the comptroller of the state by United States registered or certified mail a copy of the ordinance codified in this section along with a copy of the minutes of the city council's vote and discussion on the ordinance codified in this section.

5. This section shall become effective as of October 1, 1987.

B. The ordinance codified in this section shall be and is declared to be cumulative of all other ordinances of the city, and the ordinance shall not operate to repeal or affect any of such other ordinances. The tax provided for under this section shall not serve as an offset to, be in lieu of or in any way reduce any amount payable to the city pursuant to any franchise, street use ordinance, charter provision, statute or without limitation by the foregoing enumeration, otherwise payable by any provider of telecommunications service; it being the express intent hereof that all such obligations, impositions and agreements of every kind and nature shall remain in full force and effect without reduction or limitation hereby. (Ord. 9080 § 1, 2, 1987)

Chapter 3.12

HOTEL ROOM TAX

Sections:

3.12.010 Definitions.

3.12.020 Tax imposed—Rate.

3.12.021 additional tax imposed for approved venue project—Rate.

3.12.030 Collection of tax.

3.12.031 Collection of additional tax—Approved venue project.

3.12.040 Reports and remittances.

3.12.041 Additional tax—Reports and remittances.

3.12.050 Rules and regulations—Record inspection authority.

3.12.060 Use of proceeds.

3.12.061 Use of additional tax proceeds—Venue project fund.

3.12.070 Violation—Penalty.

3.12.080 Effective date.

3.12.010 Definitions.

As used in this chapter, and in accord with Chapter 351 of the Texas Tax Code and Chapter 334 of the Texas Local Government Code, the following terms shall have the following meanings:

A. "Additional tax" means the tax imposed for the purpose of financing a portion of the costs of the approved venue project.

B. "Approved venue project" means a multipurpose coliseum, stadium or other type of arena or facility that is planned for use for one or more professional or amateur sports events, including minor league baseball games, and related infrastructure project that was approved by a majority of the voters voting at the election held in the city on November 6, 2012, in accordance the Chapter 334, Local Government Code, as amended.

C. "City comptroller" means the Comptroller of the City of El Paso.

D. "Consideration" means the price of a room in a hotel, but does not include the cost of food served by the hotel or the cost of personal services performed by the hotel except those services related to cleaning and readying the room for use or possession.

E. "Hotel" means a building in which members of the public obtain sleeping accommodations for consideration. The term includes a hotel, motel, tourist home, tourist house, tourist court, lodging house, inn, rooming house or bed and breakfast, but does not include a hospital, sanitarium, nursing home or a dormitory or other housing facility owned or leased and operated by an institution of higher learning as those terms are defined in Section 61.003, Texas Education Code, used by the institution for the purpose of providing sleeping accommodations for persons engaged in an education program or activity at the institution.

F. "Occupancy" means the use or possession or the right to use or possess a room or space that is ordinarily used for sleeping.

G. "Occupant" means any person who under a lease, concession, permit, right of access, license, contract or agreement uses or possesses a hotel room or space, but shall not include a person who has the right to use or possess a room in a hotel for at least thirty consecutive days, so long as there is no interruption of payment for the period.

H. "Person" means any individual, company, corporation or association.

I. "Venue project fund" means the fund entitled "Ballpark Venue Project Fund" created pursuant to the city resolution approved on December 18, 2012. (Ord. 12791 § 1, 1996: Ord. 8749 § 1, 1986: prior code § 14A-1)
(Ord. No. 17912, § 1, 12-18-2012, election of 11-6-2012; Ord. No. 17913, § 1, 12-18-2012)

3.12.020 Tax imposed—Rate.

There is levied a tax upon the cost of occupancy of any room or space in a hotel, when such cost is at the rate of two dollars or more per day, such tax to be equal to seven percent of the con-

sideration paid by the occupant of such room of such hotel. (Ord. 15233 § 1, 2002: prior code § 14A-2)

3.12.021 Additional tax imposed for approved venue project—Rate.

In addition to the tax levied in Section 3.12.020, there is levied an additional tax upon the cost of occupancy of any room or space in a hotel, when such cost is at the rate of two dollars or more per day, such additional tax to be equal to two percent of the consideration paid by the occupant of such room of such hotel. The additional tax imposed under this section must be collected on every occupancy occurring on or after January 1, 2013 and must continue to be collected for so long as any bonds or other obligations that are issued for the purpose of financing a portion of the costs of the approved venue project, and any bonds refunding or refinancing those bonds or other obligations, are outstanding and unpaid.
(Ord. No. 17912, § 2, 12-18-2012, election of 11-6-2012)

3.12.030 Collection of tax.

The tax levied in this chapter is against the person paying for the occupancy of the room. Every person owning, operating, managing or controlling any hotel shall collect the tax for the city. (Prior code § 14A-3)

3.12.031 Collection of additional tax—Approved venue project.

A. The additional tax levied in this chapter is against the person paying for the occupancy of the room. Every person owning, operating, managing or controlling any hotel that is required to collect a tax under Section 3.12.030 shall collect the additional tax for the city.

B. Each bill or other receipt for hotel charge that is subject to the additional tax imposed under this chapter must conspicuously include the following statement:

"The City of El Paso requires an additional tax of two percent be imposed on each hotel charge for the purpose of financing a venue project."
(Ord. No. 17912, § 3, 12-18-2012, election of 11-6-2012)

3.12.040 Reports and remittances.

On or before the last day of January, April, July and October, every person required to collect the tax imposed by this chapter shall file a report with the city comptroller showing the consideration paid for all room occupancies in the preceding quarter, the amount of the tax collected on such occupancies and any other information which the city comptroller may reasonably require. Such report shall also show the amount paid for that quarter to the comptroller of public accounts of the state under Section 156.151 of the Tax Code of the state. Such person shall, at the time of filing such report, pay over to the city comptroller the amount of taxes required to be collected for room occupancies during the preceding quarter. (Ord. 8749 § 2, 1986: prior code § 14A-4)

3.12.041 Additional tax—Reports and remittances.

Every person required to collect a tax imposed by this chapter shall include in the quarterly reports required under Section 3.12.040, the following additional information:

A. The amount of the additional tax collected on such occupancies; and

B. Any other information which the city comptroller may reasonably require.

Such person shall, at the time of filing such report, pay over to the city comptroller the amount of additional taxes required to be collected for room occupancies during the preceding quarter.
(Ord. No. 17912, § 4, 12-18-2012, election of 11-6-2012)

3.12.050 Rules and regulations—Record inspection authority.

A. The city comptroller shall have the power to make such rules and regulations as are neces-

sary to effectively collect the tax levied herein, and shall upon reasonable notice have access to books and records necessary to enable him to determine the correctness of any report filed as required by this chapter and the amount of taxes due under the provisions of this chapter.

B. Whenever necessary to make an inspection of books and records to enforce any of the provisions of this chapter, the city comptroller or his authorized representative may enter such building or premises at all reasonable times to inspect the books and records or to perform any duty imposed upon the city comptroller by this chapter; provided, that if such building or premises be occupied, he shall first present proper credentials and request entry; and if such building or premises be unoccupied, he shall first make a reasonable effort to locate the owner or other persons having charge or control of the building or premises and request entry. If such entry is refused, the city comptroller or his authorized representative shall have recourse to every remedy provided by law to secure entry.

C. When the city comptroller or his authorized representative shall have first obtained a proper inspection warrant or other remedy provided by law to secure entry, no owner or occupant or any other persons having charge, care or control of any building or premises shall fail or neglect, after proper request is made as herein provided, to promptly permit entry therein by the city comptroller or his authorized representative for the purpose of inspection and examination pursuant to this chapter.

D. The city may directly perform an audit or contract with another person to perform the audit on an hourly rate or fixed-fee basis. The city shall provide at least thirty days' written notice to a person who is required to collect the tax with respect to a hotel before conducting an audit of the collection and payment of the hotel occupancy tax. The city shall notify and submit to the state comptroller a copy of the audit if the city obtains documentation or information showing a failure to collect or pay the state hotel occupancy tax when due. The authority to conduct an audit under this chapter is in addition to any other audit authority the city may have.

E. All of the provisions of this Section 3.12.050 and any rules and regulations made hereunder shall apply to the additional tax. (Prior code § 14A-5)

(Ord. No. 17912, § 5, 12-18-2012, election of 11-6-2012; Ord. No. 17913, § 2, 12-18-2012)

3.12.060 Use of proceeds.

The proceeds of the tax levied in this chapter shall be allocated to the following purposes:

A. One-half of one percent to maintain, improve, administer and develop the auditorium and convention center and related permanent improvements owned by the city;

B. Two and one-half percent to pay the principal of and interest on bonds used by the city to construct such auditorium and convention center and related permanent improvements;

C. Two and one-half percent to be used for advertising and conducting solicitation programs to acquaint potential users with public meeting and convention facilities, and for promotion of tourism and advertising of the city and its vicinity either by the city or through contract with persons or organizations selected by the city;

D. One and one-half percent to be used for the maintenance and support of the Civic Center, tourism promotion, and the encouragement, promotion, improvement and application of arts; however, not more than one percent will be spent on the arts. (Ord. 15233 § 2, 2002; Ord. 9494, 1988: Ord. 9175, 1987: prior code § 14A-7)

3.12.061 Use of additional tax proceeds—Venue project fund.

The proceeds of the additional tax levied in this chapter shall be allocated to the following purposes:

A. To reimburse or pay the costs of planning, acquiring, establishing, developing, constructing, and renovating the approved venue project;

B. To pay the principal, interest, reserves and other costs relating to bonds or other obligations issued to finance the approved venue project, or bonds issued to refund the obligations; or

C. To pay the costs of operating or maintaining the approved venue project.

The collection of the additional tax shall be discontinued when the bonds or other obligations described in this chapter for the approved venue project are paid in full, unless the additional tax is continued in accordance with the law.
(Ord. No. 17912, § 6, 12-18-2012, election 11-6-2012)

3.12.070 Violation—Penalty.

A. Any person who violates any of the provisions of this chapter shall be guilty of a Class C misdemeanor and upon conviction thereof shall be fined an amount not to exceed five hundred dollars for each offense. Each day that a violation is permitted to exist shall constitute a separate offense.

B. If any person shall fail to (1) collect the tax imposed by this chapter; (2) file a report as required in this chapter when due; or (3) pay to the city comptroller the tax as imposed in this chapter when the payment is due; or (4) fails to comply with Sec. 351.0041, Texas Government Code, when purchasing a hotel; or if any person files a false report, the person shall forfeit five percent of the amount due as a penalty, and after the first thirty days he shall forfeit an additional five percent of such tax, provided, however, that the penalty shall never be less than one dollar. Delinquent taxes shall draw interest at the rate of six percent per annum beginning sixty days from the date due.

C. The city may bring suit against the person who is required to collect the tax and pay the collections to the city and who has failed to file a tax report or pay the tax when due. The city may also bring suit to enjoin the person from operating a hotel until the tax is paid or the report filed. In addition to the amount of any tax owed, the person is liable to the city for:

(1) The city's reasonable attorney's fees incurred in enforcing this chapter and in collecting any tax owed by the person, and

(2) The costs of an audit conducted under this chapter as determined by the city using a reasonable rate, but only if (a) the tax has been delinquent for at least two complete city fiscal quarters at the time the audit is conducted, and (b) the city has not received a disbursement from the state comptroller related to the person's concurrent state tax delinquency; and

(3) A penalty equal to fifteen percent of the total amount of the tax owed if the tax has been delinquent for at least one complete municipal fiscal quarter.

D. All of the provisions of this Section 3.12.070 shall apply to the additional tax. (Prior code § 14A-6)
(Ord. No. 17912, § 7, 12-8-2012, election 11-6-2012; Ord. No. 17913, § 3, 12-18-2012)

3.12.080 Effective date.

This chapter shall take effect December 1, 1968. (Prior code § 14A-8)

Chapter 3.16

TAX INCREMENTAL DISTRICT

Sections:

3.16.010 Short title.

3.16.020 Blight defined.

3.16.030 Findings of fact.

3.16.040 District No. 1—Created—Boundaries.

3.16.050 District No. 1—Recordation on assessment role and attendant maps.

3.16.060 Determination and segregation of tax increments—Tax assessor's duty.

3.16.070 Tax incremental district board of directors—Designated.

3.16.080 Tax incremental district board of directors—Qualifications.

3.16.090 Tax incremental district board of directors—Terms.

3.16.100 Tax incremental district board of directors—Removal.

3.16.110 Tax incremental district board of directors—Vacancies.

3.16.120 Tax incremental district board of directors—Officers.

3.16.130 Tax incremental district board of directors—Executive secretary.

3.16.140 Tax incremental district board of directors—Meetings, bylaws and minutes.

3.16.150 Tax incremental district board of directors—Open meetings and open records.

3.16.160 Tax incremental district board of directors—Powers and duties.

3.16.170 Reinvestment zone—Findings of fact adopted by reference.

3.16.180 Reinvestment zone—Created—Boundaries.

3.16.190 Reinvestment zone—Citation.

3.16.200 Reinvestment zone—Effective date and date of determination of tax increment base established.

3.16.210 Tax increment fund—Established—location of taxes.

3.16.220 Reinvestment zone board of directors—Created—Members—Terms—Vacancies.

3.16.230 Reinvestment zone board of directors—Officers.

3.16.240 Reinvestment zone board of directors—Meetings.

3.16.250 Reinvestment zone board of directors—Rules and regulations.

3.16.260 Reinvestment zone board of directors—Powers and duties.

3.16.010 Short title.

This chapter may be known and cited as the "Tax Increment District No. 1 Ordinance." (Prior code § 8-21)

3.16.020 Blight defined.

The city adopts as a definition of "blight" for the purposes of enactment and carrying out of this chapter the following standard: "Blighted area" means any area which by reason of the presence of a substantial number of substandard, slum, deteriorated, or deteriorating structures, predominance of defective or inadequate sidewalk or street layout, inadequate parking facilities, faulty lot layout in relation to size, adequacy, accessibility or usefulness, insanity or unsafe conditions, deterioration of site or other improvements, diversity of ownership, tax or special assessment delinquency exceeding the fair value of the land, defective or unusual conditions of title, or the existence of conditions which endanger life or property by fire and other cause, or any combination substantially impairs or arrests the sound growth of a city, retards the provision of housing accommodations, or constitutes an economic or social liability and is a menace to the public health, safety, morals

or welfare in its present condition and use. This definition shall not necessarily preclude use of other definitions of blight which the city council may choose to adopt in conformance with other federal, state or local legislation, and shall be construed to extend only to programs carried out pursuant to this chapter. (Prior code § 8-22(a))

3.16.030 Findings of fact.

A. Findings of Facts Demonstrating Existence of a Blighted Area. The city council of the city makes the following findings of facts as to the existence of blighted conditions within the area identified in Maps "A," "B" and "C."*

1. The two hundred fourteen buildings, representing fifty percent of the total number of buildings, fail to meet the minimum city's fire code, Chapters 9.60 through 9.84 of this code, and are twenty-six percent of the real property in the district, and therefore constitute a current and present menace to the public safety.

2. The four hundred thirty-six structures, representing seventy-two percent of the total number of structures, fail to meet the housing or building code of the city, and are thirty-five percent of the real property in the district, and therefore are a current and present menace to the public safety.

3. There are defective or inadequate sidewalk and street layouts which are insufficient to meet the foot and vehicular traffic needs of the citizens of the city because they are located in the blighted area and the existing street layout impedes the flow of traffic.

4. The following conditions exist which impair the sound growth of the district: Defective or inadequate sidewalk and street layouts, inadequate parking facilities and faulty lot layout.

Therefore, due to the existence of the conditions stated in subdivisions 1 through 4 of this subsection, the city council finds that the total area of one hundred forty acres of the area labeled Map "A," or thirty-five percent, is a blighted area as defined in Section 3.16.020.

B. Findings of Appropriate Housing Ratio. The city council of the city finds that there are eighty-eight dwellings used for residential purposes, which comprises seven percent of the real property in the area depicted in Map "A."

C. Findings of Appropriate Property Assessment Ratios. The city council finds that the aggregate assessed value of taxable property in the area shown in Map "A" is not more than fifteen percent of the total assessed value of taxable property within the city as of December 23, 1980, according to the city tax assessment role as of record on January 1, 1980. (Prior code § 8-22(b)—(d))

* **Editor's note:** Maps "A," "B" and "C" are not set out herein, but are on file and available for inspection in the office of the city clerk.

3.16.040 District No. 1—Created—Boundaries.

The city council declares and finds that the existence of the conditions set forth in Section 3.16.030 shows the necessary degree of blight for creation of a tax incremental district pursuant to Article 1066d T.R.C.S. (1979), and, further, that improvement of the area is likely to enhance significantly the value of substantially all of the other real property in the district, so declares the area shown on Map "A" as Tax Incremental District No. 1, City of El Paso, such area being also described as an area in the CBD bounded on the north by Interstate 10, on the east by Virginia Street and St. Vrain Street, on the west by the west side of the Union Depot, and on the south by Paisano Street. (Prior code § 8-23)

3.16.050 District No. 1—Recordation on assessment role and attendant maps.

The city tax department shall record the mark "TI No. 1" on each parcel which lies within the boundary of the tax incremental district no. 1, City of El Paso, such mark to be placed on the city's assessment role and attendant maps. (Prior code § 8-24)

3.16.060 Determination and segregation of tax increments—Tax assessor's duty.

The city tax assessor shall cause to have carried out by the central appraisal district, or by other appropriate means, the following acts:

A. Determine the aggregate assessed value of the property in the district that appears on the city's assessment roll on the date the tax incremental district is created and certify the value to the governing body of the city and the board of directors of the district. That value is the tax incremental base of the taxing unit;

B. Identify on the assessment roll of the city those parcels of property which are within each existing tax incremental district, specifying the name of each district;

C. Compute the tax increment for the district according to the formula in Article 1066d, T.R.C.S. (1979);

D. Deposit in a special fund for the district all tax increments received in the district;

E. Recompute annually, and upon amendment of the district boundaries, the base and increment in accordance with Article 1066d T.R.C.S. (1979). (Prior code § 8-25)

3.16.070 Tax incremental district board of directors—Designated.

The mayor and city council shall serve as the board of directors of the tax incremental district, effective on the date of passage of this chapter. (Prior code § 8-26(a))

3.16.080 Tax incremental district board of directors—Qualifications.

Each board member shall be a duly elected member of the city council or the mayor, meeting all qualifications and criteria set forth in Section 8 of the City Charter as may be in effect at the time such district is formed. (Prior code § 8-26(b))

3.16.090 Tax incremental district board of directors—Terms.

The board members shall serve two-year terms of office to be coterminous with his or her term as district representative or mayor. (Prior code § 8-26(c))

3.16.100 Tax incremental district board of directors—Removal.

District representatives and the mayor sitting as members of the board may be removed in accordance with pertinent state and local law pertaining to the removal of these elected officials sitting in their own capacity. (Prior code § 8-26(d))

3.16.110 Tax incremental district board of directors—Vacancies.

Any vacancy on the board caused by resignation or otherwise of a district representative or mayor shall be considered filled upon the filling of the vacant district representative or mayoral position by the appropriate procedure as set forth in the City Charter and other pertinent sections of this code. (Prior code § 8-26(e))

3.16.120 Tax incremental district board of directors—Officers.

The mayor shall serve as chairman of the board. The board of directors may elect a vice chairman to preside in the absence of the chairman or when there is a vacancy in the position of chairman and may elect other officers. (Prior code § 8-26(f))

3.16.130 Tax incremental district board of directors—Executive secretary.

The director of the city development department, or his designee, shall serve as executive secretary to the board. (Ord. 11219, 1992: Prior code § 8-26(h))

(Ord. No. 17806, § 3, 6-5-2012, eff. 6-11-2012)

3.16.140 Tax incremental district board of directors—Meetings, bylaws and minutes.

A. The board shall keep such meeting dates and times and operate by such bylaws and procedures as it, by majority vote, determines shall carry out the purposes of this chapter.

B. The board shall keep minutes of its meetings on file with the city clerk and such other places as it deems necessary. (Prior code § 8-26(g))

3.16.150 Tax incremental district board of directors—Open meetings and open records.

All proceedings of the board shall be subject to the Open Meetings Act, Article 6252-17, T.R.C.S., and the Open Records Act, Article 6252-17a, T.R.C.S. (Prior code § 8-26(i))

3.16.160 Tax incremental district board of directors—Powers and duties.

The powers and duties of the board of directors of the tax incremental district no. 1, city of El Paso, shall be as follows:

A. Prepare and adopt a project plan for the district and submit such plan to the city council for consideration, such plan to include findings as to the compatibilty of the district project plan with the city's master plan;

B. Make recommendations to the governing body concerning administration of this chapter in the district;

C. Powers and duties with regard to the implementation of a project plan that the governing body by ordinance may delegate to the board. (Prior code § 8-26(j))

3.16.170 Reinvestment zone—Findings of fact adopted by reference.

The city does approve all of the statements contained in the preamble of Ordinance No. 7548, finds that all of the findings are true and correct and incorporates same in the body of this section as if copied in their entirety, specifically including all of the findings of fact contained in Ordinance No. 7094, passed on December 30, 1980. (Prior code § 8-29(a))

3.16.180 Reinvestment zone—Created—Boundaries.

The city does create a reinvestment zone for tax increment financing pursuant to and in accordance with the act and does find and declare the following:

The boundaries of the reinvestment zone are declared as the identical boundaries of tax incremental district no. 1, city of El Paso, and the specific district boundaries contained in Ordinance No. 7094 are incorporated herein and adopted by reference, and are further shown on Exhibit "A" which is attached hereto and incorporated herein. (Prior code § 8-29(b)(1))

3.16.190 Reinvestment zone—Citation.

The reinvestment zone created in Section 3.16.180 shall be known as "Reinvestment Zone Number One, City of El Paso, Texas." (Prior code § 8-29(b)(4))

3.16.200 Reinvestment zone—Effective date and date of determination of tax increment base established.

The effective date of the zone and the date of determination of the tax increment base is established according to law as the earliest date provided by Article 1066d, Vernon's Texas Civil Statutes; Article 1066e and the transitional schedule provided in Section 2(b) therein, Vernon's Texas Civil Statutes; Article 8 Section 1-g of the Texas Constitution; city Ordinance No. 7094, adopted on December 30, 1980, creating the Tax Incremental District No. 1, this section, Sections 3.16.170 through 3.16.190 and 3.16.210 through 3.16.260. The zone shall be terminated on December 31, 2010, or at an earlier time designated by a subsequent ordinance, but in any event, at such time as all project costs and tax increment bonds and interest thereon, have been paid in full. (Prior code § 8-29(b)(3))

3.16.210 Tax increment fund—Established—Allocation of taxes.

A tax increment fund is established. The tax collector of the city shall collect all property taxes levied by the city and all other taxing units on taxable real property in the zone commencing with the first payment of taxes levied by the city or other taxing units subsequent to the time the reinvestment zone takes effect and after the tax increment base has been determined and after deducting costs of collection shall allocate the taxes in accordance with the act as follows:

A. Amount of real property tax produced from the tax increment base shall be paid to the city and all other taxing units;

B. There shall next be allocated and paid over to the city and all other taxing units and tax increments which are by contract executed prior to the designation of the area as a reinvestment zone, required to be paid over by the city or other taxing unit;

C. There shall next be deposited into the tax increment fund established for the zone all tax increments produced from the captured appraised value of taxable real property in the zone;

D. After all expenses of administration and operation of the zone and all project costs and all tax increment bonds or notes issued for a reinvestment zone have been paid, and subject to any agreement with bondholders, if there is any money in the fund, it shall be paid over to the city and other taxing units levying taxes on property within the zone in amounts that reflect the respective share of total tax increments resulting from taxable real property in a reinvestment zone that were deposited in the fund during the fund's existence. (Prior code § 8-29(b)(5))

3.16.220 Reinvestment zone board of directors—Created—Members—Terms—Vacancies.

The board of directors of the reinvestment zone is established and created. The board shall consist of fifteen members for terms of two years. The makeup of the board shall be eleven directors appointed by the city council, one director appointed by the comissioner's court of the county, one director appointed by the board of trustees of the El Paso independent school district, one director appointed by the board of trustees of the community college district, and one director appointed by the board of managers of the El Paso County hospital district. Terms of directors may be staggered. A taxing unit may waive its right to appoint a director. A vacancy on the board shall be filled for the unexpired term by appointment of the governing body of the taxing unit that appointed the director who served in the vacant seat. To be eligible for appointment to the board by the city council, an individual must be either a qualified voter of the city or be at least eighteen years old and own real property in the zone, without regard to whether he or she resides in the city. (Prior code § 8-29(b)(2)a)

3.16.230 Reinvestment zone board of directors—Officers.

Each year the El Paso city council shall appoint one member of the board of directors to serve as chairman of the board for a term of one year that begins on January 1st of the following year. The board of directors may elect a vice chairman to preside in the absence of the chairman, or when there is a vacancy in the position of chairman. The board may elect other officers as it sees fit. If any member of the board is absent from three consecutive meetings of the board, the chairman or vice chairman of the board shall report this fact to the appointing authority so that consideration may be given to removal of such member. (Prior code § 8-29(b)(2)b)

3.16.240 Reinvestment zone board of directors—Meetings.

The board shall hold at least one meeting each month at a date, time and place to be determined by the chairman at the convenience of the members of the board. Special meetings may be called by the chairman, the mayor, or five or more

members of the board. The board shall hold its first meeting within thirty days of the adoption of Ordinance No. 7908 (November 1, 1983). (Prior code § 8-29(b)(2)c)

3.16.250 Reinvestment zone board of directors—Rules and regulations.

The board may adopt rules and regulations to govern meetings, election of officers, and other relevant and related procedural and substantive matters not inconsistent with Article 1066e, as amended, or any city ordinance. (Prior code § 8-29(b)(2)d)

3.16.260 Reinvestment zone board of directors—Powers and duties.

The powers and duties of the board are contained in the Act. Additional powers and duties may be delegated through ordinance by the city council. In addition, before January 1, 1984, the board shall take all action necessary to bring the plans for the zone into compliance with Section 8 of the Texas Tax Increment Financing Act of 1981 (Article 1066e, Revised Statutes), as amended by S.B. No. 641. (Prior code § 8-29(b)(2)e)

Chapter 3.20

SMALL BUSINESS ASSISTANCE

Sections:

3.20.010 Findings of fact—Intent.
3.20.020 Definitions.
3.20.030 Award of purchases and contracts to small businesses—Percentage.
3.20.040 Award of purchases and contracts to small businesses—Division when necessary.
3.20.050 Award of purchases and contracts to minority businesses—Percentage.
3.20.060 Award of purchases and contracts—Method.
3.20.070 Award of contracts—Notification of time and place.
3.20.080 Small business qualification research requirements—Maintenance of master list required.

3.20.010 Findings of fact—Intent.

The city council of the city finds that an indispensable element of the American economic system is free and vigorous competition, that the preservation and expansion of economic competition is essential to the economic well-being of this city, this state and the United States. The city council further finds that the continuing vitality of small business entities is of utmost importance to economic competition by assisting small business entities to the greatest extent possible. It is the intent of the city council by this chapter, to provide that assistance to small business entities, and by doing so, to promote economic competition to the benefit of all persons in this city. It is the intent of the council that each city agency shall attempt to award twenty percent of all purchases of articles, supplies, commodities, materials, services or contracts for services to small business. (Prior code § 18A-1(a))

3.20.020 Definitions.

The following words shall have the following meanings:

A. "Minority business" means a corporation, partnership, sole proprietorship, or other legal entity formed for the purpose of making a profit if at least fifty percent of the business is owned by minority group members or, in the case of a corporation, at least fifty-one percent of its shares are owned by minority group members. Minority group members include Black Americans, Mexican-Americans and other Americans of Latin or Spanish origin, American Orientals, American Indians and any other persons who have declared themselves to be discriminated against due to being female or because of race, color, creed, religion or place of origin.

B. "Small business" means a corporation, partnership, sole proprietorship, or other legal entity formed for the purpose of making a profit, which is independently owned and operated, has fewer than one hundred employees and less than one million dollars in annual gross receipts, and is designated a small business as provided by this chapter, but does not include subsidiaries wholly or partially owned by a business with more than one hundred employees or more than one million dollars in annual gross receipts. (Prior code § 18A-1(b))

3.20.030 Award of purchases and contracts to small businesses—Percentage.

The city shall award small businesses purchases and contract awards whose total value is not less than twenty percent of the total value of all purchases in contract awards that the city expects to make during its fiscal year. The city shall estimate the expected total value of purchases in contract awards not later than the sixtieth day of the fiscal year, but may revise the estimate as new information requires. (Prior code § 18A-1(c))

3.20.040 Award of purchases and contracts to small businesses—Division when necessary.

The city shall divide purchases in contract awards into smaller units when it is necessary to facilitate offers or bids for small businesses. (Prior code § 18A-1(d))

3.20.050 Award of purchases and contracts to minority businesses—Percentage.

The city shall award the small businesses that are also minority businesses purchases in contract awards whose total value is not less than twenty percent of the value of the purchases in contract awards the city expects to award to all small businesses. (Prior code § 18A-1(e))

3.20.060 Award of purchases and contracts—Method.

The city shall select among small and minority businesses to be awarded purchases in contract awards pursuant to this section on a competitive basis in the manner provided by the State Purchasing Act of 1957; as amended, Article 2368a, Section 2, Vernon's Texas Civil Statutes, unless the business is entitled to a preference by law. (Prior code § 18A-1(f))

3.20.070 Award of contracts—Notification of time and place.

Notice of the time and place when and where such contract shall be let shall be published in the city once a week for two consecutive weeks prior to the time set for letting such contract, the date of the first publication to be at least fourteen days prior to the date set for letting the contract, and the contract shall be let to the lowest responsible bidder meeting the specifications of the contract. (Prior code § 18A-1(g))

3.20.080 Small business qualification research requirements—Maintenance of master list required.

The department of financial services/CFO shall conduct research necessary to ascertain which business associations qualify as small businesses under the terms of this chapter, designate each as a small business, maintain a master list of small businesses, and revoke the designation when an entity ceases to be a small business. (Prior code § 18A-1(h))

Chapter 3.24

CUSTODY OF CITY FUNDS

Sections:

3.24.010 Turnover of funds by city tax assessor and collector required—When.

3.24.010 Turnover of funds by city tax assessor and collector required—When.

City funds which are received by the city tax assessor and collector shall be turned over to the city comptroller as follows:

A. The assessor and collector shall turn such funds over to the comptroller not less than once each week.

B. When the funds received by the assessor and collector for all taxing units exceed one hundred thousand dollars for one or more days less than a week, he shall turn the city's portion of such funds over to the comptroller on the first working day after the day when receipts exceeded one hundred thousand dollars. (Prior code § 8-8)

Chapter 3.28

CLAIMS AGAINST CITY

Sections:

3.28.010 Property damage and personal injury suits—Notification—Information required.

3.28.020 Wrongful death suits—Notification—Information required.

3.28.030 Property damage, personal injury suits, and wrongful death suits notification—Swearing to notice required.

3.28.010 Property damage and personal injury suits—Notification—Information required.

The city shall not be liable to any person for injuries suffered to his person or the person of another unless the injured person, or someone on his behalf, shall within ninety days or within six months for good cause shown from the date the damage occurred or the injury was received, give notice in writing to the mayor of the following facts:

A. The date and time when the damage or injury occurred and the place where the damage occurred or where the injured person was at the time the injury was received;

B. The nature and extent of the damage or injury together with a specific and detailed statement of how and under what circumstances the injury occurred;

C. The names of all the persons who according to the knowledge or information of the claimant witnessed the happening of the damage or of the injury or any part thereof and the name of the doctors, if any, to whose care the injured person is committed. (Ord. 11309 § 1, 1993: prior code § 2-1 (part))

3.28.020 Wrongful death suits—Notification—Information required.

The city shall not be liable for damages for wrongful death unless the person, or one of the persons, entitled to recover such damages shall, within ninety days or within six months for good cause shown from the date of the injury or accident causing such death, give notice to the mayor substantially as required by Section 3.28.010 in personal injury cases; or unless the person who was injured and died as a result thereof, or someone for him, had given the notice required by Section 3.28.010. (Ord. 11309 § 2, 1993: prior code § 2-1 (part))

3.28.030 Property damage, personal injury suits, and wrongful death suits notification—Swearing to notice required.

The written notice and statement required under Sections 3.28.010 and 3.28.020 shall be sworn to by the person claiming damages or by someone authorized by him to do so on his behalf. (Ord. 11309 § 3, 1993: prior code § 2-2)

Chapter 3.32

ABANDONED, LOST, STOLEN AND UNCLAIMED PROPERTY

Sections:

3.32.010	Custodian designated.
3.32.020	Recordkeeping, storage and protection—Authority to delegate duty.
3.32.030	Surrendering to person claiming ownership.
3.32.040	Unclaimed property and weapons—Disposition.
3.32.050	Sale at auction—Procedure.
3.32.060	Sale at auction—Sale in lots.
3.32.070	Sale at auction—Cash only—Rejecting bids—Disposition of proceeds.
3.32.080	Sale at auction—Recordkeeping.
3.32.090	Sale at auction—Nonsufficient bids—Reoffering—Disposition.
3.32.100	Disposition of animals.

3.32.010 Custodian designated.

The chief of police shall be the custodian of all abandoned, lost, stolen and unclaimed property which comes into the possession of any police officer, or any city employee engaged in the cleaning or repair of streets or public places. (Prior code § 2-16)

3.32.020 Recordkeeping, storage and protection—Authority to delegate duty.

The chief of police may delegate to any police department bonded employee designated by him the duty of storing and protecting such property and keeping suitable records thereof. (Ord. 10614 §1, 1991: prior code § 2-17)

3.32.030 Surrendering to person claiming ownership.

When the disposition of such property is not otherwise governed by law or by order of a court, the chief of police shall surrender such property, if claimed, to any person known to be the owner, or producing satisfactory evidence of ownership or right to possession, upon payment of any proper fees owing to the city because of the city's acquisition and storage of the property. If the right of the claimant is not certain the chief may, in his discretion, require the claimant to give reasonable security for the return of the property or its value; and if there could be conflicting claims the chief may request the legal department to file an interpleader suit. (Prior code § 2-18)

3.32.040 Unclaimed property and weapons—Disposition.

A. When the disposition of the property is not otherwise governed by the law or by order of a court, and the abandoned or unclaimed property remains unclaimed for a period of thirty days after it comes into the custody of the chief of police, it shall be delivered for sale to the purchasing agent of the city.

B. When the disposition of lost, abandoned or unclaimed weapons is not otherwise governed by law or order of a court, and where such weapons remain unclaimed for a period of thirty days after coming into the custody of the chief of police, such weapons shall be destroyed by a police officer designated by the chief of police, unless the city police department seeks forfeiture of the weapon in accord with Articles 18.18 and 18.19 of the Texas Code of Criminal Procedure.

1. The terms "weapons" includes, but is not limited to, the items defined in Vernon's Texas Penal Code, Section 46.01.

2. The chief of police or his designated representative shall maintain a record containing the following information for each weapon destroyed:

a. Description of the weapon, including identifying numbers;

b. Time and location of the destruction;

c. Sworn statement by the designated police officer that the destruction has taken place; and

d. Signature of witness to the destruction.

3. When the police department seeks forfeiture of the weapon in lieu of destruction, the chief of police or his designated representative shall maintain on file a copy of the judgment from the appropriate court awarding the forfeiture of the weapon(s) to the police department. (Ord. 9437, 1988: prior code § 2-19)

3.32.050 Sale at auction—Procedure.

From time to time as such property accumulates so that it should be disposed of, or can be disposed of to advantage, the purchasing agent shall offer the property for sale at public auction. The city council may in its discretion authorize the employment of a professional auctioneer to conduct the sale. Notice of the time and place of the sale, and a brief description of the property, shall be given by posting at three public places in the city and by three advertisements in the official newspaper. The posting of notices and the publication of the first advertisement shall be not less than ten nor more than twenty days before the sale. Notice shall also be given by certified mail to the owner or claimant, if his name and address are known or can be ascertained by reasonable diligence. (Prior code § 2-20)

3.32.060 Sale at auction—Sale in lots.

The purchasing agent may in his discretion offer the property or parts thereof for sale in lots, as he deems convenient and advantageous. (Prior code § 2-21)

3.32.070 Sale at auction—Cash only—Rejecting bids—Disposition of proceeds.

All sales shall be for cash. The purchasing agent may reject any bid he deems insufficient. After deducting the actual and reasonable costs of the sale and of storing the property, the proceeds shall be placed in the general fund. (Prior code § 2-22)

3.32.080 Sale at auction—Recordkeeping.

The purchasing agent shall keep records of the amount obtained for each piece of property or lot sold, so that it can be determined what amount should be paid to any person who may afterwards establish a legal right to part of the proceeds. (Prior code § 2-23)

3.32.090 Sale at auction—Nonsufficient bids—Reoffering—Disposition.

Property for which no sufficient bid is offered may be kept and again offered for sale, or may be otherwise disposed of as ordered by the city council. (Prior code § 2-24)

3.32.100 Disposition of animals.

In the case of lost, abandoned or unclaimed animals, the foregoing rules shall not apply. Such animals shall be disposed of by the department of animal services in accordance with the procedures set forth in Title 7 of this Code.
(Prior code § 2-25; Ord. 16808 § 1, 2007; Ord. No. 18576, § 1, 9-20-2016)

Chapter 3.36

CASH RESERVES

Sections:

3.36.010 Cash reserve fund.

3.36.020 Additional reserves.

3.36.010 Cash reserve fund.

A. Each year an amount equal to five percent of the prior year's adopted general fund operating expenditure budget shall be appropriated for the purpose of creating a cash reserve fund; provided the funds are maintained and may be used in accordance with Section 7.4 of the City Charter.

B. The cash reserve fund must be maintained as a separate entity in accounting records. Additionally, the balance on deposit in the cash reserve fund must be invested in accordance with state guidelines and income from such investments will remain within the fund, except as may be expended in accordance with Section 7.4 of the City Charter.

C. Withdrawals from the cash reserve fund, whether it has attained the required size or not, may be made from time to time to meet current expenses until sufficient taxes are collected. Such withdrawals must be approved by city council action. As soon as practical after collection of taxes, the amount so withdrawn shall be repaid to the cash reserve fund so as to keep the fund available for use in the following year. (Prior code § 8-1)
(Ord. No. 18170, § 1, 5-13-2014)

3.36.020 Additional reserves.

At the end of each fiscal year, there shall be established reserves equal to the amount of contracts and purchase orders outstanding (encumbrances). The charges to establish these reserves shall be recorded as an operating expense in the year in which the charges are required. For the purpose of preparing and administering the annual budget, the amount in the undersigned fund balance shall be determined after these reserves have been established. The city comptroller shall make the entries which are needed to establish these reserves. (Prior code § 8-1.1)

Chapter 3.40

MOTOR VEHICLE RENTAL TAX

Sections:

3.40.010 Definitions.

3.40.020 Tax imposed—Rate.

3.40.030 Collection of the tax.

3.40.040 Consummation of rental.

3.40.050 State exemptions applicable.

3.40.060 Reports and remittances.

3.40.070 Records.

3.40.080 Motor Vehicle Tax Venue Project Fund.

3.40.090 Use of proceeds.

3.40.100 Distribution of Motor Vehicle Rental Project Venue Funds.

3.40.110 Violation—Penalty.

3.40.010 Definitions.

As used in this chapter, and in accord with Chapter 334 of the Texas Local Government Code, the following terms shall have the following meanings:

"Athletic event" means a post season intercollegiate athletic football bowl game that is held annually by the Sun Bowl Association.

"Gross rental receipts" means value received or promised as consideration to the owner of a motor vehicle for rental of the vehicle, but does not include;

1. Separately stated charges for insurance;

2. Charges for damages to the motor vehicle occurring during the rental agreement period;

3. Separately stated charges for motor fuel sold by the owner of the motor vehicle; or

4. Discounts.

"Motor vehicle" means and includes:

1. A self-propelled vehicle designed to transport persons or property on a public roadway and includes a passenger car, van, station wagon, sports utility vehicle, and truck.

2. The term does not include a:

a. Trailer, semitrailer, house trailer, truck having a manufacturer's rating of more than one-half ton, or road-building machine;

b. Device moved only by human power;

c. Device used exclusively on stationary rails or tracks; or

d. Mobile office.

"Motor vehicle tax venue project fund" means the account established by a municipality by resolution for the deposit of the tax revenue collected under this chapter.

"Place of business of the owner" means an established outlet, office, or location operated by the owner of a motor vehicle or the owner's agent or employee for the purpose of renting motor vehicles and includes any location at which three or more rentals are made during the year.

"Rental" means an agreement by the owner of a motor vehicle to authorize for not longer thirty days, the exclusive use of that vehicle to another for consideration. (Ord. 13431 (part), 1997)

3.40.020 Tax imposed—Rate.

There is levied a tax upon the rental of a motor vehicle in the city at the rate of five percent of the gross rental receipts of an owner of a rented motor vehicle. (Ord. 13431 (part), 1997)

3.40.030 Collection of the tax.

A. The owner of a motor vehicle subject to the tax imposed under this chapter shall collect the tax for the benefit of the city. As provided in Chapter 334 of the Local Government Code, the owner shall add the short-term motor vehicle rental tax imposed by this chapter to the rental charge.

B. The amount of the total tax is computed by multiplying the five percent tax rate by the amount of the rental charge. If the product results in a fraction of a cent less than one-half of one cent, the fraction of a cent is not collected, if the fraction of a cent is one-half of one cent or more, the fraction shall be collected as one cent.

C. All gross rental receipts of an owner of a motor vehicle from the rental of the motor vehicle

are presumed to be subject to the tax imposed by this chapter, except for gross receipts for which the owner has accepted in good faith a properly completed exemption certificate, as set forth under Section 3.40.050 of this chapter. (Ord. 13431 (part), 1997)

3.40.040 Consummation of rental.

A rental of a motor vehicle occurs where the transfer of possession of the motor vehicle occurs. (Ord. 13431 (part), 1997)

3.40.050 State exemptions applicable.

The exemptions provided by Subchapter E, Chapter 152, Tax Code, apply to the taxes authorized by this chapter. (Ord. 13431 (part), 1997)

3.40.060 Reports and remittances.

On or before the last day of January, April, July, and October, every owner of a motor vehicle required to collect the tax imposed under this chapter shall file a report with the city comptroller showing the gross rental receipts for the immediately preceding quarter, as well as any other information which the city comptroller may reasonably require. Such owner shall, at the item of filing such report, pay over to the city comptroller the amount of taxes required to be collected for the rental of motor vehicles during the preceding quarter. (Ord. 13431 (part), 1997)

3.40.070 Records.

A. The owner of a motor vehicle used for rental purposes shall keep for four years records and supporting documents containing the following information on the amount of:

1. Gross rental receipts received from the rental of the motor vehicle; and

2. The tax imposed under this chapter and paid to the city comptroller on each motor vehicle used for rental purposes by the owner.

B. Mileage records are not required.

C. The city comptroller upon reasonable notice shall have access to books and records necessary to enable him to determine the correctness of any report filed as required by this chapter and the amount of taxes due under the provisions of this chapter.

D. An offense under subsection A of this section is a misdemeanor punishable by a fine of not less than twenty-five dollars or more than five hundred dollars. (Ord. 13431 (part), 1997)

3.40.080 Motor Vehicle Tax Venue Project Fund.

By this ordinance, the city shall establish a fund known as the motor vehicle tax venue project fund. The city comptroller shall deposit into this venue project fund:

A. The proceeds of the motor vehicle rental tax paid by the owners; and

B. Any other money required by law to be deposited into the fund. (Ord. 13431 (part), 1997)

3.40.090 Use of proceeds.

The proceeds of the tax levied in this chapter may be used to:

A. Pay the costs of collecting the tax;

B. Operate one or more athletic events in the city; and

C. Pay costs associated with an athletic event in the municipality, including payment of the costs of planning, acquiring, establishing, developing, advertising, promoting, conducting, sponsoring, or otherwise supporting the athletic event. These costs shall include payments to the colleges and universities participating in the athletic event. The maximum amount for such payments to participating universities and colleges in the athletic event which may be disbursed to the association in each year, shall be the minimum amount required to pay colleges and universities participating in the athletic event under either the association's then existing conference participation agreements relating to the athletic event or the association's agreements with the colleges and universities agreeing to participate in the athletic event. The tax collected under this chapter shall not be considered gross receipts from the athletic event. (Ord. 13762 § 1, 1998: Ord. 13431 (part), 1997)

3.40.100 Distribution of Motor Vehicle Rental Project Venue Funds.

The city may enter into a written agreement with the producer of an athletic event for the distribution of motor vehicle rental project venue funds for a use consistent with this chapter. Such agreement shall be in a form acceptable to the city attorney. (Ord. 13431 (part), 1997)

3.40.110 Violation—Penalty.

Failure to file a report as required in this chapter or failure to pay over to the city comptroller the tax as imposed by this chapter when the report or payment is due, shall be deemed a misdemeanor and shall be punishable by a fine not to exceed five hundred dollars. In addition to such penalty, any person who fails to file a report as required by this chapter or fails to pay over to the city comptroller the tax as imposed by this chapter when the report or payment is due, shall forfeit five percent of the amount due as a penalty, and after the first thirty days he shall forfeit an additional five percent of such tax. Delinquent taxes shall draw interest at the rate of ten percent per year beginning sixty days from the date due. All penalties provided under this chapter shall be cumulative. (Ord. 13431 (part), 1997)

Chapter 3.44

COLLECTION FEE

Sections:

3.44.010 Amount of fee.

3.44.020 Qualified accounts.

3.44.030 Other remedies.

3.44.010 Amount of fee.

The city comptroller or any collection agency retained by the city to collect delinquent accounts may add a one-time collection fee of twenty-one percent to any qualified gross account receivable balance. (Ord. 14700 § 1 (part), 2000)

3.44.020 Qualified accounts.

All accounts receivable which have been owed to the city for more than sixty days shall be qualified accounts for the purpose of this section excluding: (a) accounts owed to the city pursuant to leases, contracts or other agreements entered by the city which specifically enumerate different collection fees, and (b) accounts owed to the city which are not subject to a collection fee because of federal, state or local laws. (Ord. 14700 § 1 (part), 2000)

3.44.030 Other remedies.

The collection fee shall be assessed in addition to, and not in lieu of, any other interest or charges which may be allowed by law, and shall not limit any other remedy which may be available to the city with regard to any outstanding obligations of the debtor, or causes of action the city may have with regard to the underlying debt. (Ord. 14700 § 1 (part), 2000)

Chapter 3.45

HIRE EL PASO FIRST-LOCAL BID PREFERENCE

Sections:

3.45.010 Statement of policy.

3.45.020 Definitions.

3.45.030 Procedures for granting local preference in purchasing and contracting for certain construction projects, real and personal property, and services.

3.45.040 Application process.

3.45.050 Falsification of information.

3.45.060 Exceptions.

3.45.010 Statement of policy.

A. It is the policy of the City of El Paso to use the city's spending powers in a manner that promotes fiscal responsibility; maximizes the effectiveness of local tax dollars; ensures that a portion of local tax dollars remain in the local economy for economic development opportunities; and, utilizes all legally-available opportunities to contract with local businesses.

B. It is the policy of the City of El Paso to afford a bidding preference to local businesses, unless prohibited by granting agencies, exempted by federal or state laws/codes, local ordinances or city resolutions, or if doing so would clearly be disadvantageous to the city.

C. It is the policy of the City of El Paso to achieve the goals in subsection A. above by utilizing a local business purchasing preference in the competitive processes of procuring goods and services.

D. Nothing contained herein shall prohibit the city from rejecting all bids, as permitted by law.

E. Except as provided by this Chapter 3.45 Hire El Paso First-Local Bid Preference, the city's policies and procedures governing city procurement shall otherwise remain unchanged.

(Ord. No. 18169, § 1, 5-6-2014)

3.45.020 Definitions.

The words and phrases defined in this section have the following meanings:

A. "Economic development opportunities" means economic benefits to/for the City of El Paso and its citizens created by the award of a procurement contract including, but not limited to, the following:

1. Employment of residents who reside within the incorporated city limits of El Paso, Texas in the delivery of the contracted service and/or product;

2. Employment of residents who reside within the incorporated city limits of El Paso, Texas in the manufacturing/production processes of the products being procured or the delivery of services being rendered;

3. Increase of tax revenues to the City of El Paso; or

4. Twenty-five percent of the total value of the contract is subcontracted to local businesses as defined in Section 3.45.020, if subcontractors are part of the contract.

B. "Local business" means a business with a tier 1 or tier 2 principal place of business within the incorporated city limits of El Paso, Texas.

C. "Headquarter" means the executive office where the corporate officers are located and from which the operations of the business are directed and controlled by its officers or owners.

D. "Principal place of business:"

"Tier 1 principal place of business" means a business whose primary headquarter is located within the incorporated city limits of El Paso, Texas and at least ten percent of the total number of full time employees reside within the incorporated city limits of El Paso, Texas. A temporary construction trailer or temporary structure shall not be construed as the headquarter structure.

"Tier 2 principal place of business" means a business that:

1. Has been physically present and operating for at least one year in the incorporated limits of the City of El Paso; and

2. A minimum of fifty of its full time employees reside within the incorporated city limits of El Paso, Texas; and

3. Owns or leases real property or owns or leases space in a structure in which primary business is conducted in the incorporated limits of the City of El Paso; and

4. The property or space owned or leased is used as an office, plant, store, warehouse, or other function that is fully operational and has sufficient equipment, supplies, and personnel to provide the product or service of the business without significant reliance on the resources of another entity, affiliate, or an auxiliary facility of the business which is located outside the incorporated limits of the City of El Paso; and

5. A temporary construction trailer or temporary structure shall not be construed as a real property for purposes of meeting the ownership or lease requirement.

(Ord. No. 18169, § 1, 5-6-2014)

3.45.030 Procedures for granting local preference in purchasing and contracting for certain construction projects, real and personal property, and services.

A. Construction contracts in an amount less than $100,000. In purchasing construction services, if the city receives a bid from a bidder that is a tier 1 local business and whose bid is within five percent of the lowest bid price received by the city from a bidder who is not a local business or a bid from a bidder that is a tier 2 local business and whose bid is within two and one-half percent of the lowest bid received by the city from a bidder who is not a local business, the city may enter into a contract with a value of less than $100,000 with:

1. The lowest bidder; or

2. The bidder that is a tier 1 or tier 2 local business as defined herein, provided the governing body of the city determines, in writing, that awarding to the local bidder offers the city the best combination of contract price and economic development opportunities.

B. Contracts for personal property or services in an amount of less than $500,000. In purchasing any personal property that is not affixed to real property, or services, if the city receives a competitive bid from a bidder that is a tier 1 local business and whose bid is within five percent of the lowest bid price received by the city from a bidder that is not a local business or if the city receives a competitive bid from a bidder that is a tier 2 local business and whose bid is within two and one-half percent of the lowest bid price received by the city from a bidder that is not a local business, the city may enter into a contract for an amount of less than $500,000 with:

1. The lowest bidder; or

2. The bidder that is a tier 1 or tier 1 or tier 2 local business as defined herein, provided the governing body of the city determines, in writing, that awarding to the local bidder offers the city the best combination of contract price and economic development opportunities.

C. Contracts for personal property or services in an amount equal to or greater than $500,000. In purchasing any personal property that is not affixed to real property or services, if the city receives a competitive bid from a bidder that is a tier 1 local business and whose bid is within three percent of the lowest bid price received by the city from a bidder that is not a local business or if the city receives a competitive bid from a bidder that is a tier 2 local business and whose bid is within one and one-half percent of the lowest bid price received by the city from a bidder that is not a local business, the city may enter into a contract for an amount of $500,000 or more with:

1. The lowest bidder; or

2. The bidder that is a tier 1 or tier 2 local business as defined herein, provided the governing body of the city determines, in writing, that awarding to the local bidder offers the city the best combination of contract price and economic development opportunities.

(Ord. No. 18169, § 1, 5-6-2014)

3.45.040 Application process.

A. Application. All businesses seeking to be certified as a local business under Chapter 3.45 hire El Paso First-Local Bid Preference must submit an application to the city as designated on the form provided by the city. The application shall contain the following:

1. The address of the primary headquarters of the applicant's business.

2. The amount of time the applicant's business has been physically present and operating in the incorporated city limits of El Paso, Texas.

3. The number of the applicant's full time employees who reside within the incorporated city limits of El Paso, Texas.

4. Information identifying whether the business owns or leases real property or owns or leases space located in the incorporated city limits of El Paso, Texas and whether the structure is a temporary construction trailer or temporary structure.

5. Information identifying the business activities conducted on the property or space owned or leased located in the incorporated city limits of El Paso, Texas.

6. Information identifying the economic development opportunities for the City of El Paso created by the business by the award of a city contract to the business.

7. Information identifying subcontractors, if any, and the percent of the total value of the contract that is subcontracted to certified local businesses.

8. A non-refundable application fee in the amount established by city council.

(Ord. No. 18169, § 1, 5-6-2014)

3.45.050 Falsification of information.

A. A city contract that is awarded to a business based on a local business certification that is approved by the city based upon false information may be terminated by the city.

B. Information presented by an applicant of a local business certification or business considered local which is false shall be grounds for finding the business non-responsible and the city may discontinue all business with the City of El Paso for a period of three years.

(Ord. No. 18169, § 1, 5-6-2014)

3.45.060 Exceptions.

A. This program does not apply to any contract in which the federal government participates in the form of a grant or loan, or where the city acts as a conduit for federal money.

B. This program does not apply to purchases made through a purchasing cooperative program.

C. In accordance with Local Government Code Section 271.9051, this program does not apply to the purchase of telecommunications services or information services, as those terms are defined by 47 U.S.C. Section 153.

(Ord. No. 18169, § 1, 5-6-2014)

Chapter 3.46

WAGE THEFT

Sections:

3.46.010 Definition.

3.46.020 Wage Theft Coordinator.

3.46.030 Wage theft adjudication database.

3.46.040 Wage theft complaints procedure.

3.46.050 Retaliation prohibited.

3.46.060 Sanctions and penalties—City contracts.

3.46.070 Sanctions and penalties—City permits, licenses, and registrations.

3.46.080 Licenses, permits, and registrations—Appeals process

3.46.010 Definition.

1. Wage Theft Adjudication occurs when:

(1) Employer is criminally convicted as an employer pursuant to Section 61.019 of the Texas Labor Code for failure to pay wages; or

(2) Injunctive relief is granted in district court under Section 61.020 of the Texas Labor Code against the employer for repeated failures to pay wages as required by Chapter 61 of the Texas Labor Code; or

(3) A wage payment determination order becomes final under Section 61.055 or Section 61.060 of the Texas Labor Code; or

(4) The Texas Workforce Commission assesses an administrative penalty under Section 61.053 of the Texas Labor Code against the employer for acting in bad faith in not paying wages as required by Chapter 61 of the Texas Labor Code; or

(5) Employer is convicted for Theft of Service under Section 31.04 of the Texas Penal Code; or

(6) Court of competent jurisdiction finds that an employer engaged in wage theft.

2. *Employee* and *employer* have the meanings by Texas Labor Code, Section 61.001.

3. *Wages* means compensation owed by an employer for labor or services rendered by an employee, whether computed on a time, task piece, commission or other basis.

4. *Wage Enforcement Coordinator* shall mean the person designated by the City Manager to receive and investigate claims of wage theft and to create, maintain a Wage Theft database.

5. *Wage Theft Complaint* means a written complaint filed with the Wage Theft Coordinator alleging any instance of wage theft by an employer.

(Ord. No. 18370, § 1, 6-16-2015)

3.46.020 Wage Theft Coordinator.

A. Appointment. The City Manager shall designate a Wage Theft Coordinator to perform the duties identified in this Section.

B. Duties. The Wage Theft Coordinator shall:

1. Wage Theft Adjudication Database—The Wage Theft Coordinator shall create and maintain a database of employers located or operating within the City of El Paso who have a Wage Theft Adjudication record. The Wage Theft Database will be created on a "complaint basis" and populated with information provided by third parties. The Wage Theft Coordinator shall be under no obligation to investigate wage theft or to prosecute complaints.

2. Substantiate whether a proposed party to a City Contract has a Wage Theft Adjudication record or part of the Wage Theft Adjudication Database.

3. Receive, review, and process wage theft complaint according to the process established in Section 3.46.040.

4. Coordinate with the Purchasing Director to ensure that the notice of the City's Wage Theft ordinance is included in all the City's bid documents.

5. Provide and present an annual report to City Council regarding the number of employers

in the Wage Theft Adjudication Database and an update on the status of the enforcement of the City's Wage Theft ordinance.

6. The Wage Theft Coordinator shall not have the duty to receive, review, and process wage theft complaints pursuant to Section 3.46.40 related to Employers who apply for the issuance or renewal of a City permit, license, and registration.

7. Review and issue final decision of Appeals received by Applicants through the process established in Section 3.46.080.
(Ord. No. 18370, § 1, 6-16-2015; Ord. No. 18476, § 1, 3-8-2016)

3.46.030 Wage theft adjudication database.

A. Inclusion in Database. No employer shall be included in the database until the Wage Theft Coordinator has:

1. Confirmed that an employer has a Wage Theft Adjudication record;

2. Provided written notice at the address provided by the complainant, or on the documents evidencing the wage theft adjudication of the inclusion of the employer in the Wage Theft Adjudication Database.

3. Allowed the employer thirty (30) days from the date of the notice to protest the employer's inclusion in such database and provide the Wage Theft Coordinator evidence that the employer should not be included in the Wage Theft Adjudication Database. In the case of a wage theft adjudication, the Wage Theft Coordinator shall not include the employer in the Database upon proof of full payment of outstanding wage theft adjudication or satisfactory proof that the adjudication is not applicable to the employer.

B. Identity of Employer. An employer operating as a business entity shall be listed by its corporate name, address and type of business organization. If the employer is an individual, the person's name, business address, type of business or occupation shall be included.

C. Removal from Database. An employer shall be removed from the database if:

1. A Wage Theft Adjudication has been annulled, withdrawn, overturned, rescinded or abrogated, and such fact has been confirmed by the Wage Theft Coordinator; or

2. Employer provides proof of full payment of an outstanding wage theft adjudication judgment; or

3. Five (5) years or more has elapsed since the date of the employer's most recent Wage Theft Adjudication.

4. Sufficient proof is provided by Employer that the wage theft adjudication is not applicable to the Employer.
(Ord. No. 18370, § 1, 6-16-2015; Ord. No. 18476, §§ 2, 3, 3-8-2016)

3.46.040 Wage theft complaints procedure.

A. Non-City Contracts. If no City contract is involved, the Wage Theft Coordinator shall assist persons with wage theft complaints by referring the complaint to the Texas Workforce Commission.

B. City Contracts.

1. Filing a Complaint. A person employed in connection with a city contract who has a good faith belief that he is the victim of wage theft may file a wage theft complaint with the Wage Theft Coordinator in writing. The complaint shall contain fact including but not limited to: identity of the employer, date(s) on or during which the wages were earned and were due to be paid, the amount of the wages alleged to have been withheld or unpaid.

2. Notification and Resolution of the Complaint. The Wage Theft Coordinator shall notify the employer of the receipt of the wage theft complaint. Employer shall attempt to resolve the alleged issue with the affected employee by written agreement within thirty (30) days from the receipt of the City notification. Employer shall notify the Wage Theft Coordinator if the issue was resolved between the Employer and the affected employee.

3. Texas Workforce Commission.

(a) If no resolution is achieved, the complainant shall be referred to the Texas Workforce Commission ("Commission").

(b) The Wage Theft Coordinator shall seek to determine status of the complaint at the commission. The Wage Theft Coordinator shall place Employer in the Wage Theft Adjudication Database if it appears that the Commission has made a finding that wage theft occurred.

(Ord. No. 18370, § 1, 6-16-2015)

3.46.050 Retaliation prohibited.

A. No City Contractor shall retaliate against any person who has filed a wage theft complaint pursuant to this Chapter. Retaliation means action to discharge from employment, discipline, or otherwise punish an employee for filing a wage theft complaint in good faith.

B. If the Wage Theft Coordinator determines that retaliation has occurred, the Wage Theft Coordinator shall refer the matter to the City Attorney for appropriate action.

(Ord. No. 18370, § 1, 6-16-2015)

3.46.060. Sanctions and penalties—City contracts.

A. Existing City Agreement.

1. In the event the City becomes aware of the fact an Employer acting under a contract which was awarded prior to the effective date of this Ordinance has been adjudicated for wage theft, the City may terminate the contract.

2. Prior to terminating the contract the City will provide Employer with thirty (30) days' notice and opportunity to provide full proof of payment of outstanding wage theft adjudication judgment.

3. The award of future City contracts after termination of an existing contract due to an Employer's wage theft adjudication shall be managed as a New City Agreement in this section.

B. New City Agreement.

1. In the event the City becomes aware an Employer with a wage theft adjudication record has submitted a bid or proposal for City work prior to the award of a contract, the City shall deem the Employer non-responsible and refuse to enter into a City Agreement with such Employer for a period of five (5) years after the date of final adjudication.

2. Prior to deeming the Employer as non-responsible, the City will provide the Employer with thirty (30) days' notice and opportunity to provide full proof of payment of outstanding wage theft adjudication judgment.

(Ord. No. 18370, § 1, 6-16-2015)

Title 4

(RESERVED)

Title 5

BUSINESS LICENSE AND PERMIT REGULATIONS*

Chapters:

5.01	**General**
5.02	**Alcoholic Beverages**
5.03	**Amplified Sound Permit**
5.04	**Flea Market Operator**
5.05	**Public Swimming Pool Licenses**
5.06	**Home Occupation License**
5.07	**Boarding Home Facilities**
5.08	**Laundries**
5.09	**Sexually Oriented Businesses**
5.10	**Tattooing and Body Art Studio Registration and Artist License**
5.11	**Motor Vehicle Dealers**
5.12	**Dealers in Second Hand Goods, Dealers in Crafted Precious Metals, Coin Dealers and Pawnbrokers**
5.13	**Security Alarm Systems**
5.14	**Sign Contractor License**
5.15	**Vendors and Solicitors**
5.16	**Distribution of Literature, Solicitation of Donations and Other Regulated Activities at The El Paso Zoo**
5.17	**Credit Access Businesses**
5.18	**Convenience Store Regulation**
5.19	**Signage for Single-User Restrooms**

***Editor's note**—Ord. No. 17691, § 1, passed December 6, 2011, repealed Title 5, Chapters 5.04—5.112 in their entirety. Subsequently, said ordinance passed new provisions to read as herein set out. Former Title 5 pertained to Business Taxes Licenses and Regulations. It should be noted that this ordinance shall be applicable to all permit and license applications received on or after February 29, 2012.

Chapter 5.01

GENERAL

Sections:

5.01.005 City official.

5.01.010 Permit official.

5.01.020 License/Permit—Term.

5.01.030 License/Permit—Renewal.

5.01.040 License/Permit—Fee nonrefundable.

5.01.050 License/Permit—Nontransferable.

5.01.060 License/Permit—Posting.

5.01.070 License/Permit—Exemptions.

5.01.080 Enforcement and collection.

5.01.090 License/Permit—Appeal of denial, suspension or revocation.

5.01.100 Violation, penalty.

5.01.005 City official.

For purposes of Title 5 of this Code, the term "city official" is defined as any director or official designated by the city manager to enforce provisions of this title, which includes but is not limited to a permit official, building official, and fire official.

(Ord. No. 18968, § 1, 9-3-2019)

5.01.010 Permit official.

For purposes of Title 5 of this Code the "permit official" as defined in Section 1.04.030 shall be the primary authority for the issuance, denial, suspension or revocation of licenses and permits required. Specific chapters under Title 5 of this Code may designate additional city officials with authority to issue, deny, suspend or revoke licenses or permits. Any reference to the permit official or other city official with authority to enforce the terms of this title, shall also include that person's designee.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012; Ord. No. 18968, § 2, 9-3-2019)

5.01.020 License/Permit—Term.

Unless a specific chapter under Title 5 of this Code specifies a different term, all licenses and permits issued pursuant to Title 5 of this Code shall expire two years from the date of issuance, unless otherwise suspended or revoked. Applicants may, however, choose a one-year permit or license rather than a two-year permit or license if the fee for the two-year permit or license is greater than one hundred dollars.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.01.030 License/Permit—Renewal.

Unless a specific chapter under Title 5 of this Code sets out a different renewal term, if, thirty days prior to the expiration of the license or permit, there are no outstanding violations, citations, or fees owed to the city by the license or permit holder which are directly related to the license or permit, the license or permit may be renewed for a period of two years upon the filing of a new application and payment of the established renewal fee.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.01.040 License/Permit—Fee nonrefundable.

All established fees charged and collected by the city from a license or permit applicant pursuant to the provisions of Title 5 of this Code shall be nonrefundable unless otherwise specified.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.01.050 License/Permit—Nontransferable.

Any license or permit issued pursuant to the requirements of Title 5 of this Code shall not be transferable to any other location or to any other holder. Upon a change of ownership of a licensed or permitted business, the former license or permit shall automatically expire and a new license or permit must be obtained. It shall be the duty of both the licensee/permitee and the person to whom the business is transferred to notify the permit official of such change in ownership.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.01.060 License/Permit—Posting.

Unless a specific chapter under Title 5 of this Code sets out a different requirement, it shall be the duty of every person or business to keep any license or permit issued under and in accordance with the terms of Title 5 of this Code posted in a conspicuous place in the place of business licensed or permitted.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.01.070 License/Permit—Exemptions.

The City of El Paso, the County of El Paso, the El Paso Housing Authority, the State of Texas, the United States Government and any other governmental entities that are, as a matter of law, exempt from having to pay permit fees, are exempt from the payment of the license or permit fees required in this title. Utility companies and other entities who have entered into a franchise agreement with the City of El Paso are bound by the terms of the franchise agreement in reference to the payment of license or permit fees.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012, eff. 2-29-2012)

5.01.080 Enforcement and collection.

A. Any peace officer, code enforcement officer, and inspector designated by the city official is authorized to make inspections of property as necessary to enforce the provisions of Title 5 of this Code. If the owner or person in possession of such property shall refuse to permit the designee to enter property for the purpose of making inspection, the designee shall have recourse to every remedy provided by law to secure entry, including judicial warrant.

B. Any peace officer, code enforcement officer, and inspector designated by the appropriate city official is authorized to issue citations to any person found to be in violation of Title 5 of this Code.

C. Specific chapters under Title 5 of this Code may authorize additional city employees to issue citations to any person found to be in violation of Title 5 of this Code.

D. The city may collect any license or permit fee owing to it by any person by suit against such person in any court of competent jurisdiction.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012; Ord. No. 18968, § 3, 9-3-2019)

5.01.090 License/Permit—Appeal of denial, suspension or revocation.

Unless a specific chapter under Title 5 of this Code sets out a different appeal process, any applicant/licensee/permittee may appeal the denial, suspension or revocation of a license or permit required by Title 5 of this Code to the city manager as provided in this section.

A. Within ten business days of denial, suspension or revocation, the permit official or other city official authorized to deny, suspend or revoke a permit or license, shall prepare a report indicating the reasons for the denial, suspension or revocation, and shall provide a copy to applicant, licensee or permittee. Such official's decision is final unless within ten calendar days from the date of receiving such official's report, the applicant, licensee, or permittee files with the city clerk a written appeal to the city manager specifying reasons for the appeal. Said appeal shall also include a written rebuttal to such official's report.

B. The city manager or designated deputy city manager shall review the report of the permit official and the appellant's rebuttal. The city manager or designee may allow the appellant to make an oral presentation or submit additional rebuttal. The city manager or designee shall make a ruling on the appeal within a reasonable period of time after the appeal has been filed.

C. The city manager or designee shall sustain, reverse or modify the action of the official and shall notify the appellant of the decision in writing. The decision of the city manager or designee is final.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012; Ord. No. 18968, § 4, 9-3-2019)

5.01.100 Violation, penalty.

Unless a specific chapter under Title 5 of this Code sets out a different violation or penalty, any

person who violates a provision of Title 5 of this Code shall be deemed guilty of a misdemeanor and upon conviction shall be punished as provided in Chapter 1.08 of this Code by a fine not to exceed five hundred dollars. Each day the violation occurs shall constitute a separate offense.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

Chapter 5.02

ALCOHOLIC BEVERAGES

Sections:

5.02.010 Compliance required.

5.02.020 Definitions.

5.02.030 Construction consistent with state law.

5.02.040 No vested right conferred.

5.02.050 Existing liquor districts are repealed.

5.02.060 Applicability to annexed territories.

5.02.070 Certification of compliance with city requirements for application to the Texas Alcoholic Beverage Commission.

5.02.080 Resubmission of application.

5.02.090 City protest of permit/license.

5.02.100 City Liquor license/permit—Fee.

5.02.110 Issuance of permit or license.

5.02.120 License/Permit application processing.

5.02.130 Separate permit required.

5.02.140 City Liquor license/permit—Term.

5.02.150 Licenses/Permits expired for two months or more.

5.02.160 Renewal, assignment and transfer of licenses.

5.02.170 Violations and penalties.

5.02.010 Compliance required.

No person may manufacture, distill, brew, sell, import, export, transport, distribute, possess, possess for the purpose of sale, warehouse, store, bottle, rectify, blend, treat, fortify, mix, or process alcoholic beverages or possess equipment or material designed for or capable of use for manufacturing alcoholic beverages unless the use is authorized by and the person has complied with all applicable requirements of the Texas Alcoholic Beverage Code, and Title 20 and 21 of the City Code, as amended, and the person has paid the established fee and obtained a permit of the type required pursuant to the terms of this chapter.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.02.020 Definitions.

A word or term used in this chapter that is specifically defined by the Texas Alcoholic Beverage Code shall be construed to have the same meaning established by the Texas Alcoholic Beverage Code, as amended.

"Alcoholic beverage" means alcohol or any beverage containing more than one-half of one percent of alcohol by volume, which is capable of use for beverage purposes, either alone or when diluted.

"City secretary" means the permit official or other designee of the city manager whenever referenced in the Texas Alcoholic Beverage Code.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.02.030 Construction consistent with state law.

This chapter is intended to be in conformity with the Texas Alcoholic Beverage Code and with all the rules and regulations promulgated under authority of the Texas Alcoholic Beverage Commission, both as amended.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.02.040 No vested right conferred.

The sale of alcoholic beverages is a privilege and this chapter is not intended to give any person a vested right to engage in such business.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.02.050 Existing liquor districts are repealed.

Liquor districts were repealed as of August 1, 2000.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.02.060 Applicability to annexed territories.

A. When at the time of any annexation of territory to the city there was in actual existence in the annexed area a place of business at which alcoholic beverages or intoxicating liquors were lawfully sold, the room in which such business was then being conducted shall be deemed a nonresidential section for the purposes of this section, and such business may continue to operate, but only upon the following conditions:

1. The person operating or desiring to operate such business shall file with the permit official an affidavit made by himself and by another person knowing the facts and competent to testify, showing the fact that such business was in lawful operation at the time of annexation, the location then actually occupied by the business, and the name and address of the owner of the business.

2. Such person shall also produce for inspection a current valid state license or permit under which the business was being operated at the time of annexation and shall file a copy thereof.

3. A business operated under authority of this section shall not be enlarged or extended; and if the business shall cease to be conducted for a continuous period of one hundred and twenty days, it shall be deemed to be permanently abandoned, and all rights to operate an alcoholic beverage business in that location by virtue of this section shall expire.

B. The privilege granted by the above provision shall apply in the case of both past and future annexations.

C. Nothing in this section shall authorize any act which is unlawful under Title 20 or 21 of this Code, relating to zoning.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.02.070 Certification of compliance with city requirements for application to the Texas Alcoholic Beverage Commission.

A. This section applies to an application for a permit or license required by the Texas Alcoholic Beverage Code when the Texas Alcoholic Beverage Code requires certification by the city that the sale of alcoholic beverages at the place of business is authorized by city ordinance. This section also applies to a permittee seeking to change the place, address, premises, or location for which the permit or license is issued, when the Texas Alcoholic Beverage Code requires certification by the city that the sale of alcoholic beverages at the place of business is authorized by city ordinance.

B. The applicant for a permit or license subject to this section shall file a completed and verified application with the permit official. The application shall be on forms promulgated by the Texas Alcoholic Beverage Commission.

C. The permit official shall forward copies of the completed and verified application to the appropriate city officials.

D. Each city official receiving a copy of the application under subsection C. shall require that a proper investigation and inspection be conducted necessary to certify the findings required by the official under this section. If the place of business was inspected in the twelve months preceding the date the application was filed, the city official may make his certification without reinspecting the place of business if there has been no material change since the previous inspection that would affect the certification required by this section, as determined by the official in his sole discretion.

E. The applicant shall make the business place available for all inspections authorized and undertaken under this section. Inspections under subsection D. may relate, without limitation, to the requirements established by the zoning code, building code, plumbing code, mechanical code, gas code, electrical code and fire code, as may be amended; and to any provisions of this Code of ordinances and state requirements that are administered or enforced by the department of public health.

F. If the building official determines that the sale of alcoholic beverages at the place of business is an authorized use at that location and the place of business complies with all applicable provisions

of the building code, plumbing code, mechanical code, gas code and electrical code, as may be amended, the building official shall certify that finding.

G. If the fire chief certifies that the place of business complies with all applicable provisions of the fire code, the fire chief shall certify that finding to the permit official.

H. If the director of the department of public health determines that the place of business complies with all applicable provisions of the city or state health code that are enforced by the department of public health, the director shall certify that finding to the permit official.

I. If the departments listed in subsections F., G. and H. are unable to provide the required certifications because a structure, or retrofit or remodeling at the proposed place of business has not been completed, then the departments may provide an interim certification to the permit official, and the permit official may certify the application. However, occupancy and the conduct of business at the place of business is prohibited until a certificate of occupancy for the place of business, a city alcoholic beverage permit or license and a food license have been issued.

J. When the permit official receives the certifications required in subsections F., G., and H., the permit official shall certify on the application that the place of business is in a "wet area" and that the sale of alcoholic beverages for which the permit or license is sought is not prohibited at that location by any provisions of the El Paso City Charter or City Code. The permit official shall forward the certified application to the Texas Alcoholic Beverage Commission.

K. If the permit official does not receive the certifications required in subsections F., G., and H., or the permit official cannot otherwise certify on the application that the sale of alcoholic beverages at the place of business is authorized by city charter or city code, the permit official shall not certify the application.

L. The applicant may appeal the permit official's denial of the certification of the application to the city council by written notice filed with the city clerk within ten days of the applicant's receipt of the notice of denial of the certification from the permit official.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012; Ord. No. 18968, § 5, 9-3-2019)

5.02.080 Resubmission of application.

Once a permit or license has been denied by the city council for a specific place of business, an applicant shall not be allowed to resubmit an application for that same location until twelve months has elapsed from the date the city council denied the previous permit or license application.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.02.090 City protest of permit/license.

A. The city manager for the City of El Paso may protest the issuance of alcoholic beverage licenses to the county judge and the Texas Alcoholic Beverage Commission in accordance with Texas Alcoholic Beverage Code Section 61.314. Evidence supporting the protest shall be presented by the city manager with the assistance of the city attorney if necessary.

B. The city manager may protest the issuance or renewal of a state permit or license in compliance with Texas Alcoholic Beverage Commission Code Sections 11.432 and 61.314. Evidence supporting the protest shall be presented to the city manager with the assistance of the city attorney if necessary.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012; Ord. No. 19335, § 1, 5-24-2022)

5.02.100 City Liquor license/permit—Fee.

A. Once an applicant has obtained a license or permit from the Texas Alcoholic Beverage Commission, they must also obtain the corresponding license or permit from the city prior to operations. There shall be charged and collected by the city the established fee from every licensee or permittee issued any license or permit by the state or its authorized agents, and from which licensee or permittee the city is given the power by the Texas

Alcoholic Beverage Code to collect a fee. The city license or permit shall correspond to the same class of license or permit issued to such licensee or permittee by the state.

B. No person may manufacture, distill, brew, sell, import, export, transport, distribute, possess, possess for the purpose of sale, warehouse, store, bottle, rectify, blend, treat, fortify, mix, or process alcoholic beverages or possess equipment or material designed for or capable of use for manufacturing alcoholic beverages without first paying the established fee and obtaining applicable license(s) or permit(s) from the city in accordance with the Texas Alcoholic Beverage Code.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012; Ord. No. 19335, § 2, 5-24-2022)

5.02.110 Issuance of permit or license.

Upon the payment of the established fee to the city, the approval of any required reviews and inspections and exhibition to the permit official of the permit or license duly issued by the state to the applicant or person paying such fee, the permit official shall, in the name of the city, issue and deliver to such applicant or person a permit or license to engage in the business in the city of the character described in and authorized by the permit or license from the state held by such applicant or person. The permit or license so issued in the name of the city shall authorize the conduct of such business upon the premises described in the permit or license from the state, and shall be void upon expiration or revocation of the state license or permit.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.02.120 License/Permit application processing.

No license or permit required under this chapter shall be issued until the proper application, on a form approved by the permit official accompanied by all required documents, has been filed with the permit official.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.02.130 Separate permit required.

A separate permit shall be obtained and a separate fee paid for each outlet of liquor in the city.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.02.140 City Liquor license/permit—Term.

A license or permit issued under this chapter expires on the second anniversary of the date it is issued.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012; Ord. No. 19335, § 3, 5-24-2022)

5.02.150 Licenses/Permits expired for two months or more.

The permit official shall report to the Texas Alcoholic Beverage Commission all licenses or permits expired for two months or more.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.02.160 Renewal, assignment and transfer of licenses.

The provisions of the Texas Alcoholic Beverage Code Chapter 11 and Chapter 61 relating to renewal, assignment and transfer of a license or permit, and relating to refund of license and permit fees, shall apply to licenses, permits and fees of the city.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.02.170 Violations and penalties.

Any person, firm, corporation or agent who shall violate a provision of this chapter, or fail to comply therewith, or with any of the requirements thereof, shall be deemed guilty of a misdemeanor and punished by a fine not to exceed two thousand dollars. Each such person shall be deemed guilty of a separate offense for each and every day or portion thereof during which any violation of any of the provisions of this chapter is committed or continued.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

Chapter 5.03

AMPLIFIED SOUND PERMIT*

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Article I. General Provisions

5.03.010 Compliance required.

A. An establishment regulated by this chapter must be in possession of a permit allowed by this chapter when emitting sound at any outdoor area at the premises covered by said permit.

B. All persons subject to regulation by this Chapter 5.03 shall also comply with all applicable state law including Texas Penal Code Chapter 42.01.

C. This chapter shall not apply to sound generated at a scheduled stadium event or an event at a venue with more than two thousand five hundred seating capacity;

D. This chapter shall not apply to food service establishments if the establishment:

1. Accepts delivery of supplies or other items, provided that if the delivery occurs between 10:00 p.m. and 5:00 a.m., then:

a. The delivery lasts for one hour or less;

b. The delivery is only for food, nonalcoholic beverages, food service supplies, or ice; and

c. The delivery sound level when measured from the residential property closest in proximity to the establishment does not exceed sixty-five dB(A), excluding traffic and other background noise that can be reasonably excluded, or

2. Is a restaurant, as defined by Section 1.04, Alcoholic Beverage Code, that limits the use of amplified sound for playing music or amplifying human speech within the establishment's indoor or outside property boundaries to ensure:

a. The amplified sound is not used after 10:00 p.m. on Sunday through Thursday and 11:00 p.m. on Friday and Saturday, and

b. The amplified sound level does not exceed seventy dB(A) or seventy-five dB(C) when measured at the establishment's property perimeter, excluding traffic and other background noise that can be reasonably excluded.

(Ord. No. 18907, § 1, 2-26-2019; Ord. No. 019636, § 1, 5-21-2024; Ord. No. 019695, § 1, 12-17-2024; Ord. No. 019781, § 1, 8-19-2025)

5.03.020 Definitions.

The following words shall have the following meanings:

A. "Establishment" means any business entity in the city that utilizes amplification equipment at a non-residential property located within five hundred feet of a residential property as de-

***Editor's note**—As per Section 2 of Ord. No. 18907, this ordinance shall take effect one hundred eighty days after the adoption date of Feb. 26, 2019.

fined in this chapter, measured from the property line of the establishment closest to the residential property, for the purpose of emitting sound at any outdoor area on the premises between the hours of 10:00 p.m. and 12:00 a.m.

B. "Food service establishment" means any place where food is prepared and intended for individual portion service, and includes the site at which individual portions are provided. The term includes any such place regardless of whether consumption is on or off the premises and regardless of whether there is a charge for the food. The term does not include private homes where food is prepared or served for individual family consumption.

C. "Mixed use building" means a building that includes a residential occupancy and one or more other occupancy type group(s), as defined by the International Building Code.

D. "Noise nuisance" is as defined in Chapter 9.40 of the El Paso City Code, as amended.

E. "Operations" means the continued use of sound amplification equipment at non-residential property for the purpose of emitting sound at any outdoor area on the premises between the hours of 10:00 p.m. and 12:00 a.m.

F. "Outdoor area" means any portion of the establishment premises that is not fully enclosed by permanent, solid walls and a roof, (including open roll-up-style doors, open windows, or open doors) where sound amplification equipment will be utilized for the enjoyment of establishment customers, includes fixed, non-portable structures used in conjunction with sound amplification equipment, including but not limited to stages, decks, risers, and lighting support structures.

G. "Permit" means a current, valid permit issued by the permit official, in accordance with this chapter in regulation of outdoor sound at an establishment, and subject to the entire process set forth in Chapter 5.01 of the El Paso City Code, as amended, with any specific differences specified in this chapter governing over the provisions of Chapter 5.01.

H. "Permit official" is as defined in Section 1.04.030.1 of the El Paso City Code.

I. "Residential property" means a parcel of real property which is developed and used in part or in whole for human habitation, including transient uses such as hotels and motels.

J. "Restaurant" means a business that:

1. Operates its own permanent food service facility with commercial cooking equipment on its premises; and

2. Prepares and offers to sell multiple entrees for consumption on or off the premises.

K. "Sound" means sound including but not limited to music, singing or spoken words that are conveyed through the utilization of sound amplification equipment; this definition does not include a noise nuisance, as defined in Chapter 9.40 of the El Paso City Code.

L. "Sound amplification equipment" means a loud speaker, public address system, amplification system for voice and musical instruments, or other sound producing device that relies on electrical power to generate and/or amplify sound.

M. "Sound meter" means a device approved by the permit official for the purpose of measuring the level of emitted sound (in decibels) and is recognized as adhering to an established industry technical standard and is capable of calibration to ensure precision and accuracy.
(Ord. No. 18907, § 1, 2-26-2019; Ord. No. 019636, § 2, 5-21-2024; Ord. No. 019695, § 2, 12-17-2024; Ord. No. 019781, § 2, 8-19-2025)

Article II. Permit Application Process

5.03.030 Permit application.

A. Permit application. A person seeking to utilize sound amplification equipment at non-residential property for the purpose of emitting sound at any outdoor area on the premises between the hours of 10:00 p.m. and 12:00 a.m., shall submit a signed, verified application, with the established application fee(s), to the permit official.

Applications shall be on forms obtained from the permit official, and shall contain, at a minimum, the following information:

1. The name, address and telephone number of the applicant;

2. All names under which the applicant is doing business and has conducted business during the past three calendar years;

3. The address of the person responsible for the establishment;

4. A current, valid certificate of occupancy issued by the city building official, as defined in Section 18.02.111.1 in the City Code, for the establishment; and

5. A sound impact plan containing the following components:

a. A site diagram, including location of outdoor area(s) where amplified sound will be emitted, and location of sound amplification equipment;

b. Technical specifications of sound amplification equipment used in the outdoor area;

c. Description of any sound barrier(s) or sound mitigation device(s) installed in or around the outdoor area; and

d. Method of monitoring of sound amplification equipment by the establishment owner, the operator of said equipment, or by an electronic device.

B. A person responsible for an establishment shall submit a permit application in accordance with this chapter and the policies and procedures established by the permit official.

C. The person responsible for the establishment shall, under penalty of perjury, swear that all information contained in the permit application and all information submitted in connection with the permit is true and correct.

(Ord. No. 18907, § 1, 2-26-2019)

5.03.040 Permit application processing.

A. Upon receipt of a proper application as provided in this chapter and payment of the established fee, the permit official shall review and process the application.

B. Notification.

1. On behalf of the applicant, the city must issue written notice of intent to acquire a permit to any property owner and any neighborhood association within a five hundred foot radius, measured from the property line of the establishment. Each notification shall provide recipients with pertinent information to inform the city of the recipients' opportunity to provide comment on the application.

2. An applicant shall post in a place visible to the public, such as in a window or on a wall facing the street address, at the establishment written notice of the establishment's intent to acquire a permit. Said notice must comply with the requirements listed in the application as to size, color, construction, etc., for purposes of public visibility. Said notice must be posted from the time the application is submitted to the permit official until the permit application is approved or denied. The notice shall provide recipients with pertinent information to inform the city of the recipients' opportunity to provide comment on an application. The written response to an opportunity to provide comment shall allow a person to submit evidence and specific reasons why the issuance of the permit would be detrimental to the community.

3. On behalf of the applicant, the permit official shall notify every abutting residential property owner and any other residential property owner(s) within a three hundred foot radius, measured from the property line of the establishment, for the purpose of securing a written response from each notified property owner. Each notification shall provide recipients with pertinent information regarding his or her opportunity to contest an application. The written response to an opportunity to contest shall allow a person to submit evidence and specific reasons why the issuance of the permit would be detrimental to the community.

4. When an establishment is located in a mixed use building, the permit official shall issue written notice of intent to acquire a permit to the building owner.

5. The permit official shall allow thirty calendar days for the notified parties to submit comments or a written response to an opportunity to contest which should include evidence and identify specific reasons of why the issuance of the permit would be detrimental to the community prior to approving or denying a permit application.

C. The permit official shall issue the permit unless he finds that the permit should be denied as provided in Section 5.03.080 of this Code.
(Ord. No. 18907, § 1, 2-26-2019; Ord. No. 18968, § 6, 9-3-2019; Ord. No. 019695, § 3, 12-17-2024)

5.03.050 Term.

A permit issued pursuant to this chapter shall expire one year from the date of issuance, unless otherwise suspended or revoked.
(Ord. No. 18907, § 1, 2-26-2019)

5.03.060 No transfer of permit.

A. In the event the establishment changes its location, a new permit shall be required. A permit is not transferrable to a new address.

B. In the event the person responsible for the establishment changes, a new permit shall be required. A permit is not transferrable to a new owner of an establishment.
(Ord. No. 18907, § 1, 2-26-2019)

5.03.070 Renewal.

A. A permit shall be renewed under the following conditions:

1. If an application for renewal is submitted not more than forty-five calendar days and not less than thirty calendar days from the expiration of the permit in effect;

2. If the permit in effect has not been suspended or revoked during the previous term; and

3. If no more than two violations of the permit have been documented during the previous term.

B. A renewal application shall require any updates to the outdoor area and/or sound impact plan.

C. The notification required under Section 5.03.040.B shall not be required for the permit renewal application process.
(Ord. No. 18907, § 1, 2-26-2019)

Article III. Denial, Suspension, Revocation and Appeals

5.03.080 Denial.

The permit official shall deny an application for permit whether original or renewal, by serving the applicant with written notice by hand delivery or certified mail, return-receipt requested, if:

A. The applicant is found to be in violation of this chapter; or

B. The permit official finds:

1. That the applicant has supplied false or incorrect information on any application for a permit;

2. That the applicant has failed to supply all information required on the application form;

3. That the applicant has failed to pay the application fee;

4. Failure to provide the notice required by Section 5.03.040B.2, as amended;

5. That more than twenty-five percent of the notified residential property owners within three hundred feet of the property line of the establishment provide the permit official with a written response contesting the permit;

6. More than two violations of this chapter within the term of the permit (in the case of a renewal); or

7. A failure to renew a permit within thirty calendar days of an expired permit;

C. In event that an applicant's current or prior permit is under suspension, no new permit shall be issued until the term of such suspension has expired.

D. In the event that an applicant's current permit is revoked, no new permit shall be issued until the term of such revocation has expired.

E. The permit official shall issue the written notice of denial of a permit to the application which shall contain, as a minimum, the following:

1. The name of the applicant;

2. Statement that the permit is denied; and

3. Reason(s) for the denial, as listed in subsections B.1—7 of this section.

(Ord. No. 18907, § 1, 2-26-2019; Ord. No. 019695, § 4, 12-17-2024)

5.03.090 Suspension and revocation.

A. The permit official may issue a written notice of intent to suspend a permit for not more than sixty calendar days or a written notice of intent to revoke an original or renewal permit subject to this chapter if the permit official determines that any of the following is true:

1. The permit holder supplied false or misleading information on any application for a permit;

2. Except in the case of a compliance plan approved by the permit official, during the time frame covered by the plan, the permit holder is found, after notice to the permit holder and opportunity for hearing, to be in violation of a provision of this chapter or a rule adopted under this chapter, including, but not limited to the issuance of more than ten citations resulting from Chapter 9.40 of the City Code, or more than two issued violations of the permit at the establishment;

3. The permit holder is indebted to the city for fees or payment of penalties imposed by this chapter or by a rule adopted under this chapter.

B. The permit official may issue a written notice of intent to revoke a permit, as applicable, if the holder violates this chapter on two or more occasions during the term of the permit.

C. A permit holder that has had their permit suspended or revoked shall be required to surrender said permit to the permit official within seven calendar days of receiving notice from the city of suspension or revocation, regardless of whether the permit holder requests an appeal in accordance with Section 5.03.100 of this Code. In the case of suspension, failure to surrender permit within seven calendar days of notice shall cause the permit official to revoke the permit. In the case of revocation, the holder's period of revocation shall be extended to twelve months before they can apply for a new permit.

1. A permit holder shall not commence operations after the term of suspension has ended without first retrieving their permit from the permit official; and

2. A permit holder shall not continue operations subject to the permit during the period of suspension of revocation of their permit.

D. Notice. The permit official shall issue a written notice of suspension or revocation of a permit to the holder, or a proposed suspension or revocation pursuant to subsection A.3., 4. or 5. of this section, which shall contain, as applicable, the following:

1. Name and address of the permit holder;

2. Statement of whether the permit is suspended or revoked;

3. Reason(s) for the suspension or revocation;

4. Where applicable, order that the activity permitted by the permit immediately cease;

5. Recommendation of corrective measures to bring the establishment into compliance with the requirements of this chapter;

6. Reasonable time limit for the completion of the corrective measures;

7. Statement that the permit, if suspended, is subject to revocation for failure to complete the corrective measures within the allotted time;

8. Order that the permit be surrendered to the permit official within seven calendar days of receipt of notice;

9. Statement that the permit, if suspended, is subject to revocation for failure to surrender permit within the allotted time; and

10. Statement that the suspension or revocation may be appealed under the provisions set forth in Section 5.03.100 of this Code.

E. An establishment may not reapply for a new permit for a period of twelve months after said permit has been revoked.

F. The permit official may allow a permit holder the option of submitting a compliance plan

addressing the specific issues of the establishment's noncompliance in lieu of suspension or revocation. In order to avail itself of this option, the permit holder must submit within ten calendar days of the notice of suspension or revocation a plan to mitigate the issues specified in the city's notice. The compliance plan must address each issue specified in the notice and state a date certain for expected compliance. The establishment shall cease the outdoor amplification of sound until compliance is confirmed by the permit official. A permit official shall have fourteen calendar days to review the proposed compliance plan and provide notice to the establishment indicating whether the compliance plan is approved, denied or requires revision. Failure to comply by the terms of an approved compliance plan may result in the suspension or revocation of the establishment's permit subject to the provisions set forth in Section 5.03.090 of this Code.
(Ord. No. 18907, § 1, 2-26-2019; Ord. No. 18968, § 7, 9-3-2019)

5.03.100 Appeal of denial, suspension and revocation.

A. Any applicant/permittee may appeal the denial, suspension or revocation of a permit as provided in Section 5.01.090 of the El Paso City Code.

B. Notwithstanding Section 5.01.090 of the El Paso City Code, the city manager or designee's decision is subject to review by the city council. The applicant may appeal the decision of the city manager or designee to the city council by submitting a written appeal to the city clerk within ten days of the city manager or designee's decision. Within ten days after receiving the appeal, the city clerk shall notify the appellant of the time and place of the hearing before city council, which shall be as soon as practicable, but no longer than thirty days after receipt by the city clerk of the written appeal. The city council shall affirm, reverse, or modify the decision of the city manager or designee. The decision of the city council shall be final.

C. The notice discussed in Section 5.03.040 is not required to be re-posted or re-sent for an appeal.
(Ord. No. 18907, § 1, 2-26-2019)

Article IV. Permit Standards

5.03.110 Permit standards.

A. An establishment operating under a permit shall be allowed to emit sound up to 70 dBA, measured by a sound meter at the property boundary.

B. Sound emitted in violation of the standard set forth in this chapter shall be considered a noise nuisance, as defined by Chapter 9.40 of the El Paso City Code, as amended, and a nuisance which is not authorized by a permit.

C. Sound emitted from inside an establishment must comply with Chapter 9.40 of the El Paso City Code, as amended.

D. A permit must be posted in accordance with Section 5.01.060 of the El Paso City Code, as amended.

E. A copy of the sound impact plan must be maintained at the establishment and made available to any person authorized by the chapter to enforce the permit requirements, this includes but is not limited to designated peace officers.
(Ord. No. 18907, § 1, 2-26-2019; Ord. No. 18968, § 8, 9-3-2019)

Article V. Enforcement

5.03.120 Enforcement.

In addition to the requirements set forth in Section 5.01.080 of the El Paso City Code, the permit official as well as any designated peace officer, code enforcement officer and inspector of the city shall be authorized to make inspections of the establishment and issue citations to any person found to be in violation of this chapter. If the owner or permit holder of such establishment shall refuse to permit the permit official, or designee to enter the establishment for the purpose of making the inspection, the permit official, designated peace officer, code enforcement officer or

inspector shall have recourse to every remedy provided by law to secure entry, including judicial warrant.
(Ord. No. 18907, § 1, 2-26-2019; Ord. No. 18968, § 9, 9-3-2019)

Article VI. Violation, Penalty

5.03.130 Violation.

A. Any person, including, but not limited to, the property owner, the owner of the establishment, the employee in control of the establishment at the time the citation is issued, or the operator of the sound amplification equipment serving the outdoor area, who violates a provision of this chapter shall, upon conviction, be guilty of a Class C misdemeanor and punished by a fine not to exceed two thousand dollars. Each day the violation occurs shall constitute a separate offense. In addition to any penalties provided for herein, this chapter is enforceable by injunction.

B. The city may suspend or revoke the permit when more than two violations of the permit have been documented during the term of the permit. Violations of the permit include but are not limited to citations issued to the permit holder, property owner, the owner of the establishment, the employee in control of the establishment at the time the citation is issued, or the operator of sound equipment serving the outdoor area.

C. The city may suspend or revoke the permit when more than two violations of Chapter 9.40 have been documented and citations issued to the permit holder at the establishment to either the establishment owner, employee, or individual in control of the establishment at the time of issuing the citation.

D. It shall be a violation of this chapter to emit amplified sound from an outdoor area of a non-residential property from 12:01 a.m. through 7:00 a.m.

E. The city may, in accordance with Chapter 54 of the Texas Local Government Code, bring a civil action against a person violating a provision of this chapter. The civil action may include, but is not limited to, a suit to recover a civil penalty pursuant to Section 54.017 of the Texas Local Government Code not to exceed one thousand dollars for each day or portion of a day during which the violation is committed, continued, or permitted.
(Ord. No. 18907, § 1, 2-26-2019; Ord. No. 019695, §§ 5, 6, 12-17-2024)

Chapter 5.04

FLEA MARKET OPERATOR

Sections:

5.04.010 Flea market operator license provisions.

5.04.010 Flea market operator license provisions.

A. Operator permit application and processing.

1. First time application and renewal for an operator permit shall be made on a form provided by the permit official.

2. A plot plan of the site area shall accompany the application and shall show the location and dimension of the following:

a. All proposed vendor stalls/spaces, including food vendors;

b. Off-street parking;

c. Sanitary portables or fixed sanitary facilities;

d. Existing or proposed structures and uses;

e. Pedestrian walkways, fire accessways and required setback areas;

f. Storage areas.

3. Within thirty days of receipt of the application, the permit official shall issue the operator permit if all applicable provisions have been met. If all applicable provisions have not been satisfied, then the application shall be denied and the permit shall not be issued, until the applicant complies with all applicable regulations.

4. A new operator's permit shall be required if the outdoor flea market is expanded or changed in any capacity or with any change in owner or operator of the outdoor flea market.

5. The established annual fee for an operator permit shall be paid and shall be nonrefundable.

6. The operator shall cooperate and permit the city to conduct inspections of the premises at reasonable times to ensure compliance with this chapter.

B. Permit denial, suspension and revocation.

1. The city may suspend or revoke any permit granted hereunder by serving the permittee with written notice by hand-delivery or certified mail, if the permittee is found to be in violation of the code or found to pose a significant health risk to the public.

2. The permit official shall issue the written notice of denial, suspension or revocation of a permit to the permittee and shall contain, as a minimum, the following:

a. State the name and address of the location of the flea market and name of the permit holder;

b. State the permit is denied, suspended or revoked;

c. Indicate the reason(s) for the denial, suspension or revocation;

d. Order all or a portion of the flea market to be closed and not accessible to the public;

e. A statement prohibiting the further use and operation of the flea market;

f. Recommended corrective measures to bring the structure or flea market into compliance with the requirements of this chapter and any other applicable provision of the code;

g. Establish a reasonable time limit for the completion of the corrective measures;

h. State the permit, if suspended, is subject to revocation for failure to complete the corrective measures within the allotted time.

3. The permit official may post a sign at any location where a permit has been suspended or revoked pursuant to this chapter alerting the public that the location no longer has a valid permit.

C. Enforcement—Penalty.

1. Civil and criminal penalties. The permit official and designated city officials shall have the power to administer and enforce the provisions of this chapter as may be required by governing law. Any person violating any provision of this chapter is subject to suit for injunctive relief as well as prosecution for criminal violations. Any violation of this chapter is declared to be a nuisance.

2. Criminal prosecution. Any person violating any provision of this chapter shall, upon con-

viction, be fined a sum not exceeding two thousand dollars. Each day that a provision of this chapter is violated shall constitute a separate offense.

3. Civil remedies. Nothing in this chapter shall be construed as a waiver of the city's right to bring a civil action to enforce the provisions of this chapter and to seek remedies as allowed by law, including, but not limited to the following:

a. Injunctive relief to prevent specific conduct that violates this chapter or to require specific conduct that is necessary for compliance with this chapter; and

b. Any other remedy available by law.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012; Ord. No. 18968, § 10, 9-3-2019)

Chapter 5.05

PUBLIC SWIMMING POOL LICENSES

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Article I. General Provisions

5.05.010 Compliance required.

No person shall operate or maintain a public swimming pool or public spa without having first obtained and paid for a valid license for such facility from the permit official in accordance with this chapter. As a condition to obtain required licenses and renewals, the construction and operation of public swimming pools and public spas shall comply with the requirements of Chapter 9.48 (Public Swimming Pools and Spas) of this Code.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012; Ord. No. 18968, § 11, 9-3-2019)

5.05.020 Definitions.

A. "Coliform" means all facultative anaerobic, gram negative, non-spore-forming, rod-shaped bacteria that ferment lactose with gas and acid formation within forty-eight hours at thirty-five degrees Celsius.

B. "Department" means the department designated by the city manager to administer the provisions of this chapter.

C. "Director" means the city official of the department designated by the city manager to enforce the provisions of this chapter.

D. "Disinfecting equipment" means any type of commercial chlorinator or brominator.

E. "Existing pool" means a public swimming pool or public spa constructed prior to October 1, 2002.

F. "Facility" as used in this chapter, means a public swimming pool, public spa or group of public swimming pools and/or spas at one location or address.

G. Reserved.

H. "Licensee" means a person who has a valid license to operate a public swimming pool or public spa.

I. "Operator" means a business manager, complex manager, property owner, association manager, rental agent or other individual who is in charge of the day to day operation or maintenance of the property that includes a public swimming pool or public spa and is the person responsible to ensure that the public pool or public spa and associated facilities comply with state and local public swimming pool or spa operation and maintenance standards.

J. "Person" means any person, firm, partnership, association, corporation, company or organization of any kind.

K. "Private pool" means a swimming pool located at the property of a single-family or two-family dwelling used or intended for use solely by the owner, operator or lessee thereof, family and invited friends without payment of any fee.

L. "Public spa" means any spa, other than a private spa, including therapeutic spas.

M. "Public swimming pool" means any class of swimming pool, other than a private pool, including therapeutic pools.

N. "Re-circulation system" consists of pumps, piping, filters, water conditioning, disinfecting and other accessory equipment.

O. "Spa" means a hydro-therapeutic pool, also known as a jacuzzi.

P. "Superchlorination (shock treatment)" means the practice of adding eight to ten times the normal chlorine dose to destroy algae or reach breakpoint for the reduction of chloramines.

Q. "Swimming pool" means a body of water, over twenty-four inches in depth, in an artificial or semi-artificial receptacle or other container, whether located indoors or outdoors, used or intended to be used for public or private swimming, wading or recreational bathing by adults and/or children, whether or not any charge or fee is imposed for its use and which is operated and maintained by any person, and includes all structures, wading pools, appurtenances, equipment, appliances and other facilities appurtenant to and intended for the operation and maintenance of the swimming pool.

R. "Temporary public swimming pool or public spa" means a temporary above ground public swimming pool or public spa intended for public use operated under a temporary license for an event for a limited number of days.

S. "Water sample" means a portion of water taken from a pool or spa to determine the quality.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012; Ord. No. 18968, § 11, 9-3-2019)

Article II. Licenses

5.05.030 Required.

No operator or property owner shall operate or maintain, or permit the operation or maintenance of, a public swimming pool or public spa without first having obtained and paid for a valid license from the permit official. Such required license(s) shall be available for inspection by any authorized city official upon demand.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.05.040 Construction approval.

A. New public swimming pools and public spas shall have a valid certificate of occupancy from the building official demonstrating compliance with Chapter 18.08 and Chapter 18.02 of this Code.

B. Existing public swimming pools and public spas that have been altered, expanded, renovated or otherwise remodeled shall have an updated certificate of occupancy or certificate of completion demonstrating compliance with the requirements of Section 5.05.040 A.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.05.050 License application.

Operators desiring a license to operate or maintain a new or existing public swimming pool or public spa shall make application for the appropriate license to the permit official. Applications shall be on forms obtained from the permit official and shall contain, as a minimum, the following information:

A. Name of owner and operator if different from owner;

B. Address of owner and operator if different from owner;

C. Address of public swimming pool or public spa;

D. Indication if existing facility or new facility;

E. The number of public swimming pools and/or public spas on the facility.

F. Copy of certificate of occupancy if new facility.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.05.060 Application processing.

A. The permit official and the director shall review new applications and renewals.

B. Upon receipt of an application, the director shall perform an inspection to ascertain the compliance of the facility with the requirements of Chapter 9.48 and of this chapter.

C. The director shall promptly notify the permit official when a facility is found to be in com-

pliance with the requirements of Chapter 9.48 and of this chapter. For facilities in violation of the codes, the director shall issue a correction notice to the operator, in accordance with Chapter 9.48. The owner or operator receiving a correction notice shall promptly remedy the violation and ask for a re-inspection by the director. Until the violation(s) have been satisfactorily corrected and passed by the director, a license shall not be issued and the facility shall not be used.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.05.070 License issuance.

A. Subject to the approval of the director and upon receipt of the established fee, the permit official shall issue the license, unless one of the following applies:

1. One or more of the statements made in the application are not true;

2. The applicant has failed to submit a complete application; or

3. The requirements of the applicable city code provision in this title relating to permit requirements or issuance are not met.

B. Licenses are valid only for the location and owner or operator to whom the license is issued. A change in the name of the owner or operator to whom the license is issued shall require the submission of a new application for a new license.

C. Licenses may not be transferred to another party for any use or benefit.

D. The owner or operator shall obtain the appropriate license and pay the established fee prior to starting operations.

E. A person may appeal a denial of a license to the city manager as provided in Chapter 9.48.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.05.080 License renewal.

A. The license for a public swimming pool or public spa may be renewed by submitting a renewal application to the permit official. Renewal applications shall be on forms obtained from the permit official.

B. Renewal applications shall be processed in the same manner as original applications.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.05.090 Temporary licenses.

A. The director and the permit official shall be authorized to issue temporary licenses for the operation of a temporary public swimming pool or public spa.

B. Temporary licenses may be issued for a special event.

C. Temporary licenses shall not be valid for more than five days.

D. Temporary licenses shall automatically expire at 11:59 p.m. on the date of expiration.

E. The owner or operator shall obtain the appropriate license and pay the established fee prior to starting operations.

F. Temporary license applications shall be processed in the same manner as original applications as described in this chapter.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.05.100 Correction and re-inspection.

Correction and re-inspection issues shall be treated pursuant to Chapter 9.48 of the City Code.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.05.110 Suspension of license.

Suspensions shall be treated in accordance with Chapter 9.48 of the City Code.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.05.120 Revocation of license.

Revocation of licenses shall be treated in accordance with Chapter 9.48 of the City Code.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.05.130 Appeals.

Appeals shall be handled in accordance with Chapter 9.48 with the City Code.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.05.140 Fees.

Fees are established and required for all licenses and services provided in this chapter. The

owner or operator shall pay the established fees for the licenses and services provided by the city. Said fees shall include but not be limited to a water sampling fee.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

Article III. Enforcement

5.05.150 Enforcement authority.

The director, permit official and designated city officials shall be authorized to administer and enforce the provisions of this chapter and Chapter 9.48.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012; Ord. No. 18968, § 12, 9-3-2019)

5.05.160 Violations and penalties.

Any person who violates a provision of this chapter shall, upon conviction, be guilty of a misdemeanor and punished by a fine not to exceed two thousand dollars. Each day the violation occurs shall constitute a separate offense.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

CHAPTER 5.06

HOME OCCUPATION LICENSE

Sections:

5.06.010 Definition.

5.06.020 Home occupation license provisions.

5.06.010 Definition.

"Home occupation" means a permitted occupation carried on primarily within a home where such use is clearly incidental and secondary to the principal use of the property as a dwelling as defined in Section 20.02.454 of this Code and meeting the additional requirements of Section 20.10.270 and Title 21 of this Code.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.06.020 Home occupation license provisions.

A. No person shall operate or maintain, or permit the operation or maintenance of a home occupation without first having obtained a valid license from the permit official.

B. Proof of a State of Texas license must be provided, where applicable, for child and adult care facilities prior to a home occupation license being granted.

C. Application for a home occupation license shall be made on a form provided by the permit official and shall be accompanied by the established fee.

D. As part of the application, the applicant shall provide written permission for the City of El Paso to conduct an inspection of the property in its entirety that is subject of the application prior to a home occupation license being issued and at reasonable times as necessary. Deficiencies of health, safety, zoning and construction standards established by the city in the City Code will be noted in writing and must be corrected before the license is issued.

E. A request for renewal and renewal fee must be paid prior to expiration of the license.

F. License denial, suspension and revocation.

1. The permit official may suspend or revoke any license granted hereunder by serving the licensee with written notice by hand-delivery or certified mail, if the licensee is found to be in violation of this chapter or found, in the opinion of the permit official, to pose a significant health risk to the public.

2. The permit official shall issue the written notice of denial, suspension or revocation of a license to the licensee and shall contain, as a minimum, the following:

a. The name and address of the location of the home occupation and name of the licensee;

b. A statement that the license is denied, suspended or revoked;

c. The reason(s) for the denial, suspension or revocation;

d. An order that the portion of the dwelling used for a home occupation to be closed and not accessible to the public;

e. A statement prohibiting the further use of the structure for a home occupation;

f. Recommended corrective measures to bring the structure into compliance with the requirements of this chapter and any other applicable provision of the code;

g. The reasonable time limit established for the completion of the corrective measures;

h. A statement that the license, if suspended, is subject to revocation for failure to complete the corrective measures within the allotted time; and

i. A statement that the denial, suspension or revocation may be appealed to the city manager pursuant to Section 5.01.090 of this Code.

3. The permit official may post a sign at any location where a license has been suspended or revoked pursuant to this chapter alerting the public that the location no longer has a valid license.

G. Enforcement—Penalty.

1. Penalties. The permit official and designated city officials shall have the power to administer and enforce the provisions of this ordinance as may be required by governing law. Any person violating any provision of this ordinance is subject

to suit for injunctive relief as well as prosecution for criminal violations. Any violation of this chapter is hereby declared to be a nuisance.

2. Criminal prosecution. Any person violating any provision of this chapter shall, upon conviction, be fined a sum not exceeding two thousand dollars. Each day that a provision of this chapter is violated shall constitute a separate offense. An offense under this chapter is a misdemeanor.

3. Civil remedies. Nothing in this chapter shall be construed as a waiver of the city's right to bring a civil action to enforce the provisions of this chapter and to seek remedies as allowed by law, including, but not limited to the following:

a. Injunctive relief to prevent specific conduct that violates the ordinance or to require specific conduct that is necessary for compliance with the ordinance; and

b. Any other remedy available by law.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012; Ord. No. 18968, § 13, 9-3-2019)

Chapter 5.07

BOARDING HOME FACILITIES

Sections:

5.07.001 Purpose.

5.07.005 Applicability.

5.07.010 Definitions.

5.07.020 Permit required and fee.

5.07.030 Inspections.

5.07.040 Construction/remodeling.

5.07.050 Sanitary and related conditions.

5.07.060 Reporting and investigation of injuries, incidents and unusual accidents and the establishment of other policies and procedures to ensure resident health and safety.

5.07.070 Assistance with self-administration of medication.

5.07.080 Posting requirements.

5.07.090 Requirements for in-service education of facility's staff.

5.07.100 Criminal background history checks.

5.07.110 Assessment and periodic monitoring of residents

5.07.120 Inspection.

5.07.130 Required reports to the health and human services commission.

5.07.140 Appeal Process for denial, revocation, suspension or denial for renewal of permit.

5.07.150 Offenses and criminal penalties.

5.07.001 Purpose.

The purpose of this chapter is to implement the provisions of Chapter 254, Texas Health and Safety Code, as amended, which allows the city to establish regulations for the protection of the health and safety of residents of boarding home facilities. In the event of a conflict, this chapter must be construed so as to comply with Chapter 254, Texas Health and Safety Code. It is the intent and purpose of the city to administer and enforce this chapter to ensure quality care and the protection of the health and safety of boarding home facility residents by establishing standards, requiring permits and requiring boarding home facilities operating within the city limits to comply with these regulations.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.07.005 Applicability.

This chapter applies to all boarding home facilities within the City of El Paso. This chapter does not apply to:

1. Home and community support services licensed under Chapter 142 of the Texas Health and Safety Code;

2. Convalescent and nursing homes and related institutions licensed under Chapter 242 of the Texas Health and Safety Code;

3. Continuing care facilities licensed under Chapter 246 of the Texas Health and Safety Code;

4. Assisted living facilities licensed under Chapter 247 of the Texas Health and Safety Code;

5. Intermediate care facilities for the mentally retarded licensed under Chapter 252 of the Texas Health and Safety Code;

6. A person that provides home health, hospice, or personal assistance services only to persons enrolled in a program funded wholly or partly by the Texas Department of Mental Health and Mental Retardation and monitored by the Texas Department of Mental Health and Mental Retardation or its designated local authority in accordance with standards set by the Texas Department of Mental Health and Mental Retardation;

7. An establishment conducted by or for the adherents of a well-recognized church or religious denomination for the purpose of providing facilities for the care or treatment of the sick who depend exclusively on prayer or spiritual means for healing, without the use of any drug or material remedy, if the establishment complies with safety, sanitary, and quarantine laws and rules;

8. A retirement community;

9. A monastery or convent;

10. A child-care facility as defined by Section 42.002 of the Texas Human Resources Code;

11. Family violence shelter center as defined by Section 51.002 of the Texas Human Resources Code; or

12. A sorority or fraternity house or other dormitory associated with an institution of higher education.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.07.010 Definitions.

A. Definitions. For purposes of this chapter, the following terms have these specially defined meanings.

1. "Abuse" is defined in the Texas Human Resource Code Section 48.002 and means:

a. The negligent or willful infliction of injury, unreasonable confinement, intimidation, or cruel punishment with resulting physical or emotional harm or pain to an elderly or disabled person by the person's caretaker, family member, or other individual who has an ongoing relationship with the person; or

b. Sexual abuse of an elderly or disabled person, including any involuntary or nonconsensual sexual conduct that would constitute an offense under Section 21.08, Penal Code (indecent exposure) or Chapter 22, Penal Code (assaultive offenses), committed by the person's caretaker, family member, or other individual who has an ongoing relationship with the person.

2. "Assistance with self-administering medication" means assisting a resident by reminding the resident to take medication, opening and removing medications from a container, placing medication in a resident's hand or in/on a clean surface such as a medication reminder box and reminding the resident when a prescription medication needs to be refilled.

3. "Boarding home facility" means an establishment that:

a. Furnishes, in one or more buildings, lodging to three or more persons with disabilities or elderly persons who are unrelated to the owner of the establishment by blood or marriage; and

b. Provides community meals, light housework, meal preparation, transportation, grocery shopping, money management, laundry services, or assistance with self-administration of medication but does not provide personal care services to those persons.

4. "Commission" means the health and human services commission.

5. "Elderly person" means a person who is sixty-five years of age or older.

6. "Exploitation" is defined in the Texas Human Resource Code Section 48.002 and means the illegal or improper act or process of a caretaker, family member, or other individual who has an ongoing relationship with the elderly or disabled person using the resources of an elderly or disabled person for monetary or personal benefit, profit, or gain without the informed consent of the elderly or disabled person.

7. An "injury, incident or unusual accident" means an event that resulted in a change in the resident's physical or mental status that occurred in the boarding home facility or on the grounds of the boarding home facility that requires intervention by a private or public entity responsible for medical or mental health services or an event that requires the facility taking resident safety and protection measures including:

a. An allegation of abuse, neglect, or exploitation;

b. Death;

c. A resident's absence from the facility when circumstances place the resident's health, safety or welfare at risk;

d. Fire;

e. Criminal acts; and

f. Altercations between residents.

8. "Neglect" is defined in the Texas Human Resource Code Section 48.002 and means the failure to provide for one's self the goods or services, including medical services, which are necessary to avoid physical or emotional harm or pain or the failure of a caretaker to provide such goods or services.

9. "Personal care services" means:

a. Assistance with meals, dressing, movement, bathing, or other personal needs or maintenance;

b. The administration of medication by a person licensed to administer medication or the assistance with or supervision of medication; or

c. General supervision or oversight of the physical and mental well-being of a person who needs assistance to maintain a private and independent residence in an assisted living facility or who needs assistance to manage the person's personal life, regardless of whether a guardian has been appointed for the person.

10. "Person with a disability" means a person with a mental, physical, or developmental disability that substantially impairs the person's ability to provide adequately for the person's care or protection and who is eighteen years of age or older or under eighteen years of age and who has had the disabilities of minority removed.

11. "Resident" means a person who is residing in a boarding home facility.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012; Ord. No. 18968, § 14, 9-3-2019)

5.07.020 Permit required and fee.

A. After the effective date of the ordinance codified in this section [July 1, 2011], no person shall operate a boarding home facility, as defined in the chapter, without first obtaining a permit from the city and paying the established fee for such permit. The permit official is the responsible agent for issuance of a final permit. A permit issued under this chapter shall permit the permittee to engage in the operation of a boarding home facility, provided that all other provisions of this chapter are complied with.

B. Fees. Permit fees collected shall be used for the administration of the city's permitting program, to include permitting, renewal of the permit and inspections, or for purposes directly related to providing boarding facility services or other assisted living facility services to elderly persons or persons with disabilities.

C. Boarding home owners/operators must provide to the permit official documentation of any applicable construction or remodeling permits as part of the permit process before an initial permit is issued. All permits must be prominently displayed in the boarding home.

D. An annual operational permit shall be required by the fire official for boarding home facilities operating under the following occupancy classifications (as per the adopted fire code): R-2, R-3, R-4, I-1.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012; Ord. No. 18968, § 15, 9-3-2019)

5.07.030 Inspections.

A boarding home site must pass all required inspections and the owner/operator must keep a current file of reports and other documentation needed to demonstrate compliance with applicable laws and regulations. The inspections must be signed, dated, and free of any outstanding corrective actions. Proof that all required inspections have been completed must be provided to the permit official prior to the issuance of a permit. The following inspections are required:

1. Annual fire inspection by the fire official.

2. Annual kitchen inspection by the department of public health or other city department responsible for enforcing food safety requirements of the El Paso City Code;

3. Annual inspection of liquefied petroleum gas systems by an inspector certified by the Texas Railroad Commission, if required.

4. Annual inspection to determine compliance with the property maintenance code, building codes and zoning ordinances.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012; Ord. No. 18968, § 16, 9-3-2019)

5.07.040 Construction/remodeling.

A. Each owner/operator of a boarding home facility must ensure each resident's health, safety, comfort and protection from fire hazard through the following standards that address the construction or remodeling of a boarding home facility,

including locally adopted fire code, plumbing, heating, lighting, ventilation and other housing conditions.

B. Each facility must meet the following applicable codes and regulations:

1. Local zoning and building codes;

2. Federal, state and local adopted fire codes and applicable standards;

3. Federal, state and local health and safety codes; and

4. Federal and state accessibility regulations.

C. Mobile homes shall not be permitted for use as boarding homes or additions to existing boarding homes.

D. Sleeping rooms must have at least seventy square feet of floor space in single-occupancy rooms and at least sixty square feet of floor space for each occupant in multi-occupancy rooms.

E. A telephone must be available, twenty-four hours per day, must be easily accessible, and must afford privacy for use by residents. A listing of emergency telephone numbers, including the numbers of the local police, fire department, ambulance, the office of the local governmental entity that issued the boarding house permit, the Texas Department of Family and Protective Services (DFPS), the local mental health authority, and the Texas Information and Referral Network must be placed in plain view on or next to the telephone and accessible to persons who are visually or hearing impaired, as needed.

F. Each facility must have a kitchen that:

a. Is accessible to the residents sharing the use without going through a sleeping room of another resident;

b. Has a food preparation area with a total of not less than six square feet;

c. Contains a minimum floor space of sixty square feet for dining area or, each kitchen with dining attached must be at least one hundred square feet;

d. Has a minimum two compartment sink for manual dishwashing;

e. Has a cooking stove fueled by gas or electricity;

f. Contains at least one cabinet of adequate size, suitable for storage of food and utensils.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012; Ord. No. 18968, § 17, 9-3-2019)

5.07.050 Sanitary and related conditions.

A. Each owner/operator of a boarding home facility must be responsible for maintaining the dwelling and premises in a clean and sanitary condition.

B. Each owner/operator must be responsible for the extermination of any insects, rodents or other pests in the rooms occupied by residents, storage areas, attics, or on the premises and yard.

C. Each facility shall meet all applicable state and local sanitary codes.

D. Poisonous, toxic, and flammable materials shall:

1. Be stored and maintained away from bed linens, towels, or kitchen equipment;

2. Be prominently and distinctly labeled for easy identification of contents; and

3. Not be used in a way that contaminates food equipment or utensils, or in a way that constitutes a hazard to employees or residents.

E. All food and drink shall be:

1. Clean, free from spoilage, pathogenic organisms, toxic chemicals, and other harmful substances;

2. Prepared, stored, handled, and served so as to be safe for human consumption;

3. Maintained at a temperature of 41 degrees Fahrenheit or below for foods subject to spoilage;

4. Maintained at 135 degrees Fahrenheit or above at all times for hot foods ready to serve;

5. Maintained in the freezer at a temperature of no higher than 0 degrees Fahrenheit; and

6. Stored in food containers that are appropriately labeled, dated and protected from flies, insects, rodents, dust, and moisture.

F. With the exception of service animals for the disabled birds, cats, dogs or other animals are not permitted in rooms or areas in which food is prepared, stored or where utensils are washed or stored.

G. Employees or residents engaged in food handling shall:

1. Observe sanitary methods, including hand washing as appropriate; and

2. Not be assigned to preparing foods for others at the facility if carrying a disease that can be transmitted to others.

3. Regardless of the number of residents, each boarding home facility shall hold a valid food handling permit issued by the applicable local or state regulatory authority in the name of the owner/operator and for the specific boarding home facility.

4. If preparing meals for residents, staff must have a food-handler's permit.

H. Each boarding home facility shall be equipped with a first aid kit as recommended by the American Red Cross.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.07.060 Reporting and investigation of injuries, incidents and unusual accidents and the establishment of other policies and procedures to ensure resident health and safety.

A. Each owner/operator of a boarding home facility must develop and implement policies and procedures for investigating and documenting injuries, incidents and unusual accidents that involve residents. Owners/operators must also establish policies and procedures necessary to ensure resident health and safety.

1. Minimum requirements for the documentation of injuries, incidents or unusual accidents should include, but are not limited to:

a. Date and time of the injury, incident or unusual accident occurred.

b. Description of the injury, incident or unusual accident.

c. Description of any medical or mental health treatment the resident received.

d. Steps taken by the owner/operator to prevent future injuries, incidents or unusual accidents if a problem at the room and board facility resulted in the injury, incident or unusual accident.

e. When the resident's legal guardian or legally authorized representative was notified about the injury, incident or unusual accident.

2. Residents, the resident's guardian, or legally authorized representatives should be given access to records within forty-eight hours of requesting the records from the owner/operator.

B. In addition to investigating and documenting injuries, incidents or unusual accidents, an owner/operator must report any allegations of abuse, neglect or exploitation of an adult age sixty-five or older or an adult with a disability to the Texas Department of Family and Protective Services. Failure to report suspected abuse, neglect or exploitation of an elderly adult or adult with a disability is a Class A misdemeanor.

1. Each owner/operator should ensure that each resident has access to a telephone twenty-four hours per day that is easily accessible and affords privacy for use by residents.

2. The owner/operator shall ensure that no resident is harassed, threatened or intimidated at anytime for making a report of abuse, neglect or exploitation.

3. Owner/operators will provide each resident with a copy of the definitions of abuse, neglect or exploitation as outlined in Chapter 48 of the Human Resources Code.

4. Owner/operators will allow law enforcement personnel, emergency medical and fire personnel access to the room and board facility when these professionals are responding to a call at the owner/operator's room and board facility.

C. No operator or other employee of a boarding home facility shall provide services or engage in behavior that constitutes a financial conflict of interest including:

1. Borrowing from or loaning money to residents;

2. Witnessing wills in which the operator or employee is a beneficiary;

3. Co-mingling the resident's funds with the operator's or other residents' funds; or

4. Becoming the guardian, conservator or power of attorney for a resident.

D. If an owner/operator becomes the representative payee for a resident or assists a resident with general money management, the owner/operator shall:

1. Maintain separate financial records for each resident for which the owner/operator is the representative payee for the entire period of time the owner/operator is the resident's representative payee and continue to maintain the resident's records for one year past the last calendar day the owner/operator is the resident's representative payee;

2. Include in the records an itemized list of expenditures that the owner/operator has made on behalf of the resident, including the charges that are assessed by the owner/operator;

3. Maintain receipts for all expenditures in addition to the itemized documentation; and

4. Develop a budget with the resident outlining routine expenditures and ensure that expenditures that are not routine are discussed with the resident before the resident's funds are expended; and

5. The owner/operator will allow the resident, the resident's guardian, or legally authorized representative access to the resident's financial records that are maintained by the owner/operator within forty-eight hours of receiving a request.

E. An owner/operator of a boarding home facility shall develop a service agreement with each resident and maintain a copy of the agreement signed by the resident.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.07.070 Assistance with self-administration of medication.

A. Assistance with self-administration of medication may be provided to adult residents who can identify their medication and know when their medication should be taken but require assistance with self-administration. Assistance with self-administration of medication may not be provided to minors.

B. Assistance with self-administration of medication is limited to:

1. Reminding the resident to take medication;

2. Opening a container, removing medication from a container, and placing medication in a resident's hand or in/on a clean surface, such as a pill cup or medication reminder box, for the resident's self-administration; and

3. Reminding the resident when a prescription needs to be refilled.

C. All residents' medication must be stored in a locked area. The boarding home facility must provide a central locked storage or individual locked storage areas for each resident's medication.

1. If the boarding home facility uses a central medication storage area, a boarding home employee must be available to provide access at all times and each resident's medication must be stored separately from other residents' medications within the storage area.

2. If a resident's medication requires refrigeration, the boarding home facility must provide a refrigerator with a designated and locked storage area or a refrigerator inside a locked medication room.

3. Medications labeled for "external use only" must be stored separately within the locked area.

4. Poisonous substances must be labeled, stored safely, and stored separately from medications within a locked area.

5. If a boarding home facility stores controlled drugs, the facility must adopt and enforce a written policy for preventing the diversion of the controlled drugs.

D. Medication that remains in the boarding home facility after a resident is no longer lodging in the facility must be properly disposed of by the owner or operator in accordance with applicable county or municipality requirements.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.07.080 Posting requirements.

The boarding home facility must prominently and conspicuously post for display in a public area, that is readily available to residents, the operator, employees, and visitors the following:

1. The permit issued by the city;

2. A sign prescribed by the city specifying how complaints may be registered with the city;

3. A notice in a form prescribed by the city stating that inspection and related reports are available at the facility for public inspection and providing a telephone number that may be used to obtain information concerning the facility;

4. A concise summary of the most recent inspection report relating to the facility; and

5. A notice in a form prescribed by the city that lists the name, location, and contact information for:

(a) The closest local public health services agency in the proximity of the facility; and

(b) A local organization or entity that represents, advocates, or serves elderly persons or persons with disabilities, including any related toll-free contact information for reporting emergencies to the organization or entity.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.07.090 Requirements for in-service education of facility's staff.

A. Each owner/operator and employee is subject to the following initial training requirements prior to contact with residents:

1. Employer rules and policies;

2. Recognizing and reporting abuse, neglect and exploitation;

3. Resident's rights, including all applicable rights from the following:

a. Texas Human Resource Code, Chapter 102, Rights of the Elderly;

b. Texas Human Resource Code, Chapter 112, Developmental Disabilities;

c. Texas Property Code, Chapter 301, Fair Housing Practices; and

d. Texas Property Code, Chapter 92, Residential Tenancies.

4. Policies and procedures for contacting emergency personnel when a resident's health or safety is at risk;

5. Complaint process specific to the city and boarding home;

6. Assistance with self-administration of medication;

7. Prevention of injuries, incidents and unusual accidents;

8. Emergency, evacuation and disaster plan; and

9. Service specific orientation that includes, but is not limited to:

a. Nutrition, including meal preparation and dietary needs;

b. Sanitation;

c. Laundry; and

d. Housework.

B. Each owner/operator and employee is subject to the following ongoing training requirements:

1. Updates and changes in any policies and procedures within ten days of the owner, operator or employee becoming aware of the change.

2. Orientation specific to the needs of each new resident within one day of the resident moving into the home.

3. Orientation specific to the needs of a resident whose needs have changed due to injury, illness, hospitalization or other circumstances which affect the resident's needs within one day of the owner, operator, or employee becoming aware of the change.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.07.100 Criminal background history checks.

A. A boarding home facility owner/operator's permit to operate a boarding home may be denied, revoked, suspended, or denied for renewal if the owner/operator has been convicted of a criminal offense listed in subsections C. or D. of this section or if the owner/operator has in its employ any person convicted of a criminal offense listed in subsection C. or D.

B. The owner/operator must complete any state or federal request and release forms that are required to obtain a criminal history report for the owner/operator. In addition to the permit fee, the owner/operator will provide funding to the county/

municipality in a manner specified by the county/municipality to cover any fees imposed by state or federal agencies for the report.

C. The following histories will disqualify an owner/operator from obtaining a permit to operate a boarding home or will serve as a bar to being employed by a boarding home facility:

1. An offense under Chapter 19, Penal Code (criminal homicide);

2. An offense under Chapter 20, Penal Code (kidnapping and unlawful restraint);

3. An offense under Section 21.02, Penal Code (continuous sexual abuse of young child or children), or Section 21.11, Penal Code (indecency with a child);

4. An offense under Section 22.011, Penal Code (sexual assault);

5. An offense under Section 22.02, Penal Code (aggravated assault);

6. An offense under Section 22.04, Penal Code (injury to a child, elderly individual, or disabled individual);

7. An offense under Section 22.041, Penal Code (abandoning or endangering child);

8. An offense under Section 22.08, Penal Code (aiding suicide);

9. An offense under Section 25.031, Penal Code (agreement to abduct from custody);

10. An offense under Section 25.08, Penal Code (sale or purchase of a child);

11. An offense under Section 28.02, Penal Code (arson);

12. An offense under Section 29.02, Penal Code (robbery);

13. An offense under Section 29.03, Penal Code (aggravated robbery);

14. An offense under Section 21.08, Penal Code (indecent exposure);

15. An offense under Section 21.12, Penal Code (improper relationship between educator and student);

16. An offense under Section 21.15, Penal Code (improper photography or visual recording);

17. An offense under Section 22.05, Penal Code (deadly conduct);

18. An offense under Section 22.021, Penal Code (aggravated sexual assault);

19. An offense under Section 22.07, Penal Code (terroristic threat);

20. An offense under Section 33.021, Penal Code (online solicitation of a minor);

21. An offense under Section 34.02, Penal Code (money laundering);

22. An offense under Section 35A.02, Penal Code (Medicaid fraud);

23. An offense under Section 42.09, Penal Code (cruelty to animals);

24. An offense under Chapter 31, Penal Code (theft), that is punishable as a felony;

25. An offense under Section 30.02, Penal Code (burglary); or

26. A conviction under the laws of another state, federal law, or the Uniform Code of Military Justice for an offense containing elements that are substantially similar to the elements of an offense listed in this subsection.

D. A person may not own a boarding home or be employed in a position the duties of which involve direct contact with a resident in a boarding home before the fifth anniversary of the date the person is convicted of any felony offense not listed in subsection C. or any of the following non-felony offenses:

1. An offense under Section 22.01, Penal Code (assault), that is punishable as a Class A misdemeanor;

2. An offense under Section 32.45, Penal Code (misapplication of fiduciary property or property of a financial institution), that is punishable as a Class A misdemeanor or a felony;

3. An offense under Section 32.46, Penal Code (securing execution of a document by deception), that is punishable as a Class A misdemeanor or a felony;

4. An offense under Section 37.12, Penal Code (false identification as peace officer);

5. An offense under Section 42.01(a)(7), (8), or (9), Penal Code (disorderly conduct); or

6. A conviction under the laws of another state, federal law, or the Uniform Code of Military Justice for an offense containing elements that are substantially similar to the elements of an offense listed in this subsection.

E. The owner/operator must ensure that all employees, including volunteers who are not residents, have had a background check of conviction records, pending charges and disciplinary board decisions completed within the past two years, and is repeated every year thereafter, and that the individual is not disqualified under the provisions of subsections C. and D. of this section. The owner/operator will immediately discharge any employee or volunteer whose criminal history check reveals conviction of a crime that bars employment or volunteer service.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.07.110 Assessment and periodic monitoring of residents

A. Owners/operators of a boarding home facility or their designee will complete and document an annual assessment and conduct periodic monitoring to ensure that a resident is capable of self-administering medication and completing basic elements of personal care as listed in subsection B. and C. The assessment will be used as a tool to determine if the needs of the resident can be addressed in a boarding home facility or if the resident needs personal care services and/or medication administration that cannot be provided by the boarding home facility.

B. Elements of the self-administration of medication to be assessed by the boarding home facility owner/operator or designee include the ability to perform each of the following tasks with little assistance:

1. Identifying the name of the medication;

2. Providing a reason for the medication (the owner/operator cannot force the resident to disclose a health condition that is the basis for the medication if the resident refuses);

3. Distinguishing color or shape;

4. Preparing correct number of pills (dosage);

5. Confirming the time to take medication(s); and

6. Reading labels.

C. Elements of personal care to be assessed by the boarding home facility owner/operator include the resident's ability to:

1. Eat independently;

2. Bathe without assistance;

3. Dress without assistance; and

4. Move and transfer independently.

D. As a result of an assessment, if an owner/operator finds that a resident is in a state of possible self-neglect due to no longer being able to perform basic elements of personal care as listed in subsection C. and believes that a higher level of care is needed, the owner/operator is responsible for the following:

1. Contacting the department of family and protective services by phoning the statewide intake division at 1-800-252-5400;

2. Notifying the resident's guardian or legally authorized representative; and

3. Contacting the appropriate health or human services authority to advise that the resident requires services beyond what can be provided by the boarding home facility.

E. A state of self-neglect does not exist if the resident receives outside professional services that meet the resident's need for personal care or self-administration of medication. In these cases, the resident can remain in the room and board facility provided that all needs for personal care and self-administration of medication are met.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.07.120 Inspection.

Any designated peace officer, code enforcement officer, and inspector may inspect any boarding home facility at reasonable times as necessary to determine if it is an assisted living facility and to ensure compliance with this chapter.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012; Ord. No. 18968, § 18, 9-3-2019)

5.07.130 Required reports to the health and human services commission.

With the exception of the year this chapter is adopted, each year thereafter, prior to September 30, the permit official shall submit a report to the State of Texas Health and Human Services Commission. The report shall contain the following information:

1. The total number of boarding home facilities permitted during the preceding state fiscal year;

2. The total number of boarding home facility applications denied permitting, including a summary of cause for denial;

3. The total number of boarding home facility permits active on August 31 of the preceding state fiscal year;

4. The total number of residents reported housed in each boarding home facility reported;

5. The total number of inspections conducted at each boarding home facility by the city;

6. The total number of permits revoked or suspended as a result of an inspection; and

7. A summary of the outcome for the residents displaced by revocation or suspension of a permit.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012; Ord. No. 18968, § 19, 9-3-2019)

5.07.140 Appeal Process for denial, revocation, suspension or denial for renewal of permit.

A. A boarding home facility owner/operator permit to operate a boarding home may be denied, revoked, suspended, or denied for renewal if the owner/operator fails to comply with the requirements of this chapter.

B. The appropriate city official shall notify the permit official of a boarding home facility owner/operator's failure to comply with any of the provisions of this chapter. The permit official shall send a written notice of violation to the owner/operator detailing the violation(s) and providing thirty days within which to cure. The applicable city official shall keep the permit official informed as to the compliance/noncompliance with the notice of violation. If the violations have not been cured within thirty days, the permit official shall notify the owner/operator that the permit has been denied, revoked, suspended or denied renewal.

C. Appeal.

1. The owner/operator may appeal the denial, revocation, suspension or denial of renewal of permit to the appellate authority, the city manager or designated deputy city manager, by providing notice of such appeal within fifteen days of receipt of notice that permit has been denied, revoked, suspended or denied renewal.

2. Form of appeal. The appeal shall be in writing and shall contain a written statement and other documentation to support the appellant's reasons why the permit should not be denied, revoked, suspended or denied renewal and shall be accompanied by an established fee. If the applicant is requesting a reasonable accommodation (modification or exception to this chapter) the applicant must state what type of accommodation is requested and why such accommodation is necessary. The written appeal shall be submitted to the permit official.

3. Upon receipt of a written appeal, the permit official shall forward the appeal along with all documents constituting the record of the permit official's decision and transmit the documents to the appellate authority within five business days from receipt of the written appeal. Receipt of a written appeal stays any action on the denial, revocation, suspension or renewal of the permit until a decision from the appellate authority is rendered, unless the permit official certifies in writing to the appellate authority that a stay would cause imminent peril to life or property.

4. The appellate authority shall decide the appeal within ten business days. The appellate authority shall notify the city attorney's office if the appellant is requesting a reasonable accommodation, so that such request can be reviewed in accordance with the provisions of the Fair Housing Act. The appellate authority shall affirm, reverse or modify the decision from which the ap-

peal was taken. The appellant shall be notified of the appellate authority's decisions within five business days. After notification to the appellant has been provided, action in accordance with the appellate authority's decision can be taken by the permit official.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012; Ord. No. 18968, § 20, 9-3-2019)

5.07.150 Offenses and criminal penalties.

Any person who shall violate any provision of this chapter shall be deemed guilty of a misdemeanor and punished by a fine not exceeding two thousand dollars; and if such violation shall be continuing, each day's violation shall constitute a separate offense.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

Chapter 5.08

LAUNDRIES

Sections:

5.08.010 Definitions.

5.08.020 License—Required—Application—Investigation—Issuance.

5.08.030 License—Denial—Suspension—Revocation.

5.08.040 Natural light—Windows—Skylights.

5.08.050 Prohibitions.

5.08.060 Sanitary conditions.

5.08.070 Diseased employees prohibited.

5.08.080 Use of wallpaper prohibited.

5.08.090 Air space—Ventilation.

5.08.100 Floor construction.

5.08.110 Plumbing and drainage facilities.

5.08.120 Clothing room.

5.08.130 Separation of laundered and unlaundered fabrics.

5.08.140 Boiling and sterilization.

5.08.150 Sprinkling restricted.

5.08.160 Applicability of provisions.

5.08.170 Inspections.

5.08.010 Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section.

"Director" means the city official of the department designated by the city manager to enforce this chapter.

"Public laundry" means any place, room, building or structure which is used for the purpose of washing, drying, starching or ironing wearing apparel, household linens or other washable fabrics by or for the general public.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012; Ord. No. 18968, § 21, 9-3-2019)

5.08.020 License—Required—Application—Investigation—Issuance.

A. It is unlawful for any person to conduct any public laundry business within the city without first paying the established fee and obtaining a license therefore. Application for such license shall be made in writing to the permit official on a form to be provided by him for that purpose. The application shall be sworn to by the applicant, and shall contain the following information:

1. The full name and the city address of the individual(s) or organization applying for the license;

2. Information relating to compliance with the physical requirements for a laundry facility, as required in this chapter; and

3. Such other information, attachments, and submissions that are requested on the application form as reasonably necessary for a fair determination as to whether the license should be issued.

B. It is unlawful for any person to solicit public laundry business within the city for any laundry, whether such public laundry is conducted within or without the city, without such person having first obtained a license as provided herein and having complied with all the provisions of this chapter and paid the established fee.

C. Upon receipt of a proper application as provided in this chapter, the permit official shall review the application and forward a copy of the application to the director. The director shall cause an investigation to be made of the premises described in such application for the purpose of determining whether the conditions therein conform with the provisions of this chapter and whether a license should be issued. Such investigation shall be completed within thirty days after the date of receipt of the application. If such investigation reveals a violation of any of the provisions stated in this ordinance, the applicable established re-inspection fee shall be assessed and paid to the city five days before a re-inspection is conducted.

D. The permit official in accordance with applicable provisions of this chapter, shall issue the

license applied for within ten days of the completion of his investigation, unless the permit official finds any of the following:

1. One or more of the statements made in the application are not true;

2. That applicant has made or caused to be made false statements or misrepresentations on the application;

3. The applicant has failed to submit a complete application;

4. The established fee has not been paid; or

5. The conditions of the proposed laundry do not conform with the provisions or requirements of this chapter.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012; Ord. No. 18968, § 22, 9-3-2019)

5.08.030 License—Denial—Suspension—Revocation.

The permit official, upon consultation with the appropriate city official, and by written notice to the licensee, may suspend or revoke any license granted under the terms of this chapter for violation of any of the provisions of this chapter, or because such laundry is dangerous or detrimental to the health of the city or the health of the persons employed therein. A license holder who has been served with a denial, suspension, or revocation notice, may appeal the permit official's action to the city manager as provided in Section 5.01.090 of this Code.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012; Ord. No. 18968, § 23, 9-3-2019)

5.08.040 Natural light—Windows—Skylights.

No public laundry shall be operated or conducted in any cellar, basement or in any room or place in any building which is not provided with sufficient natural light by means of windows or skylights, so that on clear days between one hour after sunrise and one hour before sunset a newspaper of ordinary type is readily readable therein; and the general arrangement of the machinery and equipment shall be such as not to unnecessarily obstruct the lighting and ventilation through such windows and skylights.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.08.050 Prohibitions.

No persons shall be permitted to sleep in any room used as a public laundry. No laundered or unlaundered fabrics belonging to the trade of any laundry shall be kept in any room that is used for living purposes.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.08.060 Sanitary conditions.

Every room or place used as a public laundry or for the storage of unlaundered or laundered fabrics in connection therewith, shall at all times be kept in good repair and maintained in a clean and sanitary condition as to floors, windows, ceiling, woodwork, machinery, utensils and fixtures.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.08.070 Diseased employees prohibited.

No person afflicted with tuberculosis, acute or active venereal disease, communicable or loathsome skin disease or other communicable disease shall be permitted to work in any public laundry, and no owner, proprietor, manager or person in charge of any public laundry shall knowingly permit or suffer any such person to be employed therein.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.08.080 Use of wallpaper prohibited.

No wallpaper of any character shall be applied to the walls or ceiling of any room or place used for public laundry purposes.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.08.090 Air space—Ventilation.

Any room, place or building used as a public laundry must have a clear height between the floor and finished ceiling of not less than ten feet and must be ventilated by means of windows to the

outer air, and in every room or place so used at least one thousand cubic feet of air space shall be provided for each person employed therein.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.08.100 Floor construction.

The floor of every room or place in any public laundry, except the washroom, shall be constructed of standard flooring or of some impervious material. The washroom of any public laundry licensed under the provisions of this chapter shall be constructed of concrete, cement, tile or stone laid in cement or of some other impervious material, and shall be watertight and properly drained to the public sewer, and the angle where the floor and the wall join shall likewise be watertight.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.08.110 Plumbing and drainage facilities.

Every public laundry shall be provided with adequate sanitary plumbing and drainage facilities satisfactory to the director. The installation of all drains and plumbing fixtures shall be in accordance with the requirements of the building code. Every water closet, sink or other plumbing fixture installed therein shall be of an approved type, impermeable and thoroughly sanitary.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.08.120 Clothing room.

A separate room or sufficient space in a room entirely separate from the room in which the fabrics are washed and dried shall be provided in every public laundry and shall be maintained in a dry and sanitary condition, in which employees may keep their wraps or outer clothing.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.08.130 Separation of laundered and unlaundered fabrics.

Every person maintaining, conducting or operating any public laundry shall be required to provide facilities for the separate handling for clean and soiled fabrics, and no clean or laundered fabrics shall be allowed to come in contact with any unlaundered or soiled fabrics at any time.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.08.140 Boiling and sterilization.

No fabrics received at any public laundry to be laundered shall be removed therefrom until the same have been thoroughly sterilized in a washing machine or other receptacle provided for that purpose in which the water has been brought to a boiling temperature or maintained at a temperature of one hundred seventy degrees Fahrenheit for at least twenty minutes; except, however, silks, woolens or other fabrics which would be injured by the foregoing process, provided the same shall be treated with soap, bleach or such other standard disinfectant solutions as shall be approved by the director.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.08.150 Sprinkling restricted.

No owner, proprietor or manager of any public laundry or any person employed therein shall be permitted to sprinkle any fabrics with water or other liquid substance ejected from the mouth or blown out of any other device communicating or coming in contact with the mouth of such person.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.08.160 Applicability of provisions.

A. The provisions of this chapter shall not apply to any room located in a dwelling, in which room domestic laundry work is done by or for the occupants thereof exclusively, or to any female doing private laundry work in her home for personal customers; provided, that not more than two persons shall be so employed in such domestic laundry work.

B. The provisions of this chapter shall likewise apply to public laundries which furnish to the general public facilities or equipment for laundry work to be done by the customer on the premises of the laundry, whether or not employees of the laundry take part in such work.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.08.170 Inspections.

It shall be the duty of the director and he is authorized and empowered to designate peace officers, code enforcement officers and inspectors to inspect or cause to be inspected from time to time all premises wherein public laundries are conducted for the purpose of ascertaining whether the provisions of this chapter and all other ordinances of the city relative to the keeping and operating of public laundries are being complied with, and it shall be his duty to cause all such ordinances and laws to be strictly enforced.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012; Ord. No. 18968, § 24, 9-3-2019)

Chapter 5.09

SEXUALLY ORIENTED BUSINESSES

Sections:

5.09.010 Rationale and findings.
5.09.020 Definitions.
5.09.030 Classification.
5.09.040 License required.
5.09.050 Issuance of license.
5.09.060 Inspection.
5.09.070 Renewal of license.
5.09.080 Suspension.
5.09.090 Revocation.
5.09.100 Hearing; denial, revocation and suspension; appeal.
5.09.110 Transfer of license.
5.09.120 Hours of operation and supervision of premises.
5.09.130 Regulations pertaining to exhibition of sexually explicit films or videos.
5.09.140 Loitering, exterior lighting, visibility and monitoring requirements.
5.09.150 Penalties and enforcement.
5.09.160 Applicability of ordinance to existing businesses.
5.09.170 Prohibited conduct.
5.09.180 Scienter required to prove violation or business licensee liability.
5.09.190 Failure of city to meet deadline not to risk applicant/licensee rights.
5.09.200 Severability.
5.09.210 Conflicting code provisions repealed.
5.09.220 Effective date.

5.09.010 Rationale and findings.

A. Purpose. It is the purpose of this chapter to regulate sexually oriented businesses in order to promote the health, safety, moral and general welfare of the citizens of the city, and to establish reasonable and uniform regulations to prevent the deleterious secondary effects of sexually oriented businesses within the city. The provisions of this chapter have neither the purpose nor effect of imposing a limitation or restriction on the content or reasonable access to any communicative materials, including sexually oriented materials. Similarly, it is neither the intent nor effect of this chapter to restrict or deny access by adults to sexually oriented materials protected by the First Amendment, or to deny access by the distributors and exhibitors of sexually oriented entertainment to their intended market. Neither is it the intent nor effect of this chapter to condone or legitimize the distribution of obscene material.

B. Findings and Rationale. Based on evidence of the adverse secondary effects of adult uses presented in hearings and in reports made available to the city council, and on findings, interpretations, and narrowing constructions incorporated in the cases of *City of Littleton v. Z.J. Gifts D-4, L.L.C.*, 541 U.S. 774 (2004); *City of Los Angeles v. Alameda Books, Inc.*, 535 U.S. 425 (2002); *City of Erie v. Pap's A.M.*, 529 U.S. 277 (2000); *City of Renton v. Playtime Theatres, Inc.*, 475 U.S. 41 (1986); *Young v. American Mini Theatres*, 427 U.S. 50 (1976); *Barnes v. Glen Theatre, Inc.*, 501 U.S. 560 (1991); *California v. LaRue*, 409 U.S. 109 (1972); and *Fantasy Ranch, Inc. v. City of Arlington*, No. 04-11337, 2006 WL 2147559 (5th Cir. 2006); *N.W. Enters. v. City of Houston*, 352 F.3d 162 (5th Cir. 2003); *Baby Dolls Topless Saloons, Inc. v. City of Dallas*, 295 F.3d 471 (5th Cir. 2002); *BGHA, LLC v. City of Universal City*, 210 F. Supp. 2d (W.D. Tex. 2002), aff'd 340 F.3d 295 (5th Cir. 2003); *LLEH, Inc. v. Wichita County*, 289 F.3d 358 (5th Cir. 2002); *Hang On, Inc. v. City of Arlington*, 65 F.3d 1248 (5th Cir. 1995); *Woodall v. City of El Paso*, 49 F.3d 1120 (5th Cir. 1995); *J&B Entertainment, Inc. v. City of Jackson*, 152 F.3d 362 (5th Cir. 1998); *SDJ, Inc. v. City of Houston*, 837 F.2d 1268 (5th Cir. 1988); *TK's Video, Inc. v. Denton County*, 24 F.3d 705 (5th Cir. 1994); *Heideman v. South Salt*

Lake City, 342 F.3d 1182 (10th Cir. 2003); *Lady J. Lingerie, Inc. v. City of Jacksonville*, 973 F. Supp. 1428 (M.D. Fla. 1997), aff'd 176 F.3d 1358 (11th Cir. 1999); *Ctr for Fair Public Policy v. Maricopa County*, 336 F.3d 1152 (9th Cir. 2003); *World Wide Video of Washington, Inc. v. City of Spokane*, 368 F.3d 1186 (9th Cir. 2004); *Reliable Consultants, Inc. v. City of Kennedale*, Case No. 4:05-CV-166-A (N.D. Tex., May 16, 2005); *Sensations, Inc. v. City of Grand Rapids*, 2006 WL 2504388 (W.D. Mich., Aug. 28, 2006); *Gammoh v. City of La Habra*, 395 F.3d 1114 (9th Cir. 2005); *Ben's Bar, Inc. v. Village of Somerset*, 316 F.3d 702 (7th Cir. 2003);

And based upon reports concerning secondary effects occurring in and around sexually oriented businesses, including, but not limited to, Austin, Texas — 1986; Indianapolis, Indiana — 1984; Garden Cove, California — 1991; Houston, Texas — 1983; Phoenix, Arizona — 1979, 1995-98; Chattanooga, Tennessee — 1999-2003; Minneapolis, Minnesota — 1980; Los Angeles, California — 1977; Whittier, California — 1978; Spokane, Washington — 2001; St. Cloud, Minnesota — 1994; Littleton, Colorado — 2004; Oklahoma City, Oklahoma — 1986; Dallas, Texas — 1997, 2004; Greensboro, North Carolina —2003; Kennedale, Texas — 2005; Effingham, Illinois — 2005; Amarillo, Texas — 1977; El Paso, Texas — 1986; New York, New York Times Square — 1994; and the Report of the Attorney General's Working Group on the Regulation of Sexually Oriented Businesses (June 6, 1989, State of Minnesota);

The city council finds:

1. Sexually oriented businesses, as a category of commercial uses, are associated with a wide variety of adverse secondary effects including, but not limited to, personal and property crimes, prostitution, potential spread of disease, lewdness, public indecency, obscenity, illicit drug use and drug trafficking, negative impacts on surrounding properties, urban blight, litter and sexual assault and exploitation;

2. Sexually oriented businesses should be separated from sensitive land uses to minimize the impact of their secondary effects upon such uses, and should be separated from other sexually oriented businesses, to minimize the secondary effects associated with such uses and to prevent an unnecessary concentration of sexually oriented businesses in one area;

3. Each of the foregoing negative secondary effects constitutes a harm, which the city has a substantial government interest in preventing and/or abating. This substantial government interest in preventing secondary effects, which is the city's rationale for this chapter, exists independent of any comparative analysis between sexually oriented and non-sexually oriented businesses. Additionally, the city's interests in regulating sexually oriented businesses extend to preventing future secondary effects of either current or future sexually oriented businesses that may locate in the city. The city finds that the cases and documentation relied on in this chapter are reasonably believed to be relevant to said secondary effects.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.09.020 Definitions.

For purposes of this chapter, the words and phrases defined in the sections hereunder shall have the meanings therein respectively ascribed to them unless a different meaning is clearly indicated by the context.

"Adult bookstore" or "adult video store" means an establishment which, as one of its principal business activities, offers for sale or rental for any form of consideration any one or more of the following: books, magazines, periodicals or other printed matter, or photographs, films, motion pictures, video cassettes, compact discs, digital video discs, or other visual representations which are characterized by their emphasis upon the display of specified sexual activities or specified anatomical areas.

A "principal business activity" exists where the commercial establishment:

1. Has a substantial portion of its displayed merchandise which consists of said items;

2. Has a substantial portion of the wholesale value of its displayed merchandise, which consists of said items;

3. Has a substantial portion of the retail value of its displayed merchandise which consists of said items;

4. Derives a substantial portion of its revenues from the sale or rental, for any form of consideration of said items;

5. Maintains a substantial section of its interior business space for the sale or rental of said items; or

6. Maintains an "adult arcade," which means any place to which the public is permitted or invited wherein coin-operated or slug-operated or electronically, electrically or mechanically controlled still or motion picture machines, projectors or other image-producing devices are regularly maintained to show images to five or fewer persons per machine at any one time, and where the images so displayed are characterized by their emphasis upon matter exhibiting specified sexual activities or specified anatomical areas.

"Adult cabaret" means a nightclub, bar, juice bar, restaurant, bottle club or other commercial establishment, whether or not alcoholic beverages are served, whose primary business is the offering to customers of live entertainment that features persons who appear semi-nude.

"Adult lounge" means an adult cabaret, as defined above, which is permitted or licensed premises, pursuant to the Texas Alcoholic Beverage Code, where alcoholic beverages may be served or sold.

"Adult motion picture theater" or "adult movie theatre" means an establishment, that contains a room with a screen or projection area, whose primary business is the exhibition to customers of films, motion pictures, videocassettes, digital video disc, slides, any electronically produced media or similar photographic reproductions which are distinguished by or characterized by an emphasis on matters depicting, describing or relating to specified sexual activities or specified anatomical areas or intended to provide sexual stimulation or sexual gratification to such customers and are regularly shown to more than five persons for any form of consideration.

"Characterized by" means describing the essential character or quality of an item. As applied in this chapter, no business will be classified as a sexually oriented business by virtue of showing, selling or renting materials rated NC-17 or R by the Motion Picture Association of America.

"City" means City of El Paso, Texas.

"Conduct any business in a sexually oriented business" means any person who engages in any one or more of the following:

1. Operate a cash register, cash drawer or other depository on the premises of the sexually oriented business where cash funds or records of credit card or other credit transactions generated in any manner by the operation of the sexually oriented business or the activities of the premises of the sexually oriented business;

2. Display or take orders from any customer for any merchandise, goods, entertainment or other services offered on the premises of the sexually oriented business;

3. Deliver or provide to any customer any merchandise, goods, entertainment or other services offered on the premises of the sexually oriented business;

4. Act as a door attendant to regulate entry of customers or other persons into the premises of the sexually oriented business; or

5. Supervise or manage other persons in the performance of any of the foregoing activities on the premises of the sexually oriented business.

"Employee" means any person, whether or not the person is designated as an employee, independent contractor, agent or otherwise, who renders any service whatsoever to the customers of a sexually oriented business, works in or about a sexually oriented business or who conducts any business in a sexually oriented business and who receives or has the expectation of receiving any compensation from the operator, or customers of the sexually oriented business. By way of example, rather than limitation, the term includes the operator

and other management personnel, clerks, dancers, models and other entertainers, food and beverage preparation and service personnel, door persons, bouncers and cashiers. It is expressly intended that this definition cover not only conventional employer-employee relationships but also independent contractor relationships, agency relationships and any other scheme or system whereby the "employee" has an expectation of receiving compensation, tips or other benefits from the sexually oriented business or its customers in exchange for services performed on the premises.

"Establish" or "establishment" means and includes any of the following:

1. The opening or commencement of any sexually oriented business as a new business;

2. The conversion of an existing business, whether or not a sexually oriented business, to any sexually oriented business; or

3. The addition of any sexually oriented business to any other existing sexually oriented business.

"Hearing officer" means an attorney who is licensed to practice law in Texas, and retained to serve as an independent tribunal to conduct hearings under this chapter.

"Influential interest" means any of the following: (1) the actual power to operate the sexually oriented business or control the operation, management or policies of the sexually oriented business or legal entity which operates the sexually oriented business, (2) ownership of a financial interest of thirty percent or more of a business or of any class of voting securities of a business, or (3) holding an office (e.g., president, vice president, secretary, treasurer, managing member, managing director, etc.) in a legal entity which operates the sexually oriented business.

"Licensee" means a person in whose name a license to operate a sexually oriented business has been issued, as well as the individual or individuals listed as an applicant on the application for a sexually oriented business license. In the case of an "employee" it means the person in whose name the sexually oriented business employee license has been issued.

"Manager" means any person who supervises, directs or manages any employee of a sexually oriented business or any other person who conducts any business in a sexually oriented business with respect to any activity conducted on the premises of the sexually oriented business, including any on-site manager.

"Nudity" or a "state of nudity" means the showing of the human male or female genitals, pubic area, vulva, anus, anal cleft or cleavage with less than a fully opaque covering, or the showing of the female breast with less than a fully opaque covering of any part of the nipple and areola.

"On-site manager" means a person charged by an owner or operator of a sexually oriented business with the responsibility for direct supervision of the operation of the sexually oriented business and with monitoring and observing all areas of the sexually oriented business to which customers are admitted at all times during which the sexually oriented business is open for business or customers are on the premises of the sexually oriented business.

"Operate" or "cause to operate" means to cause to function or to put or keep in a state of doing business.

"Operator" means any person on the premises of a sexually oriented business who causes the business to function or who puts or keeps in operation the business or who is authorized to manage the business or exercise overall operational control of the business premises. A person may be found to be operating or causing to be operated a sexually oriented business whether or not that person is an owner, part owner, or licensee of the business.

"Person" means individual, proprietorship, partnership, corporation, association, or other legal entity.

"Premises" means the real property upon which the sexually oriented business is located, and all appurtenances thereto and buildings thereon, including, but not limited to, the sexually oriented

business, the grounds, private walkways, and parking lots and/or parking garages adjacent thereto, under the ownership, control or supervision of the licensee, as described in the application for a sexually oriented business license.

"Regularly" means and refers to the consistent and repeated doing of the act so described.

"Semi-nude" or "state of semi-nudity" means the showing of the female breast below a horizontal line across the top of the areola and extending across the width of the breast at that point, or the showing of the male or female buttocks. This definition shall include the lower portion of the human female breast, but shall not include any portion of the cleavage of the human female breasts exhibited by a bikini, dress, blouse, shirt, leotard or similar wearing apparel provided the areola is not exposed in whole or in part.

"Sexual device" means any three-dimensional object designed and marketed for stimulation of the male or female human genitals, anus, female breast or for sadomasochistic use or abuse of oneself or others and shall include devices such as dildos, vibrators, penis pumps, and physical representations of the human genital organs. Nothing in this definition shall be construed to include devices primarily intended for protection against sexually transmitted diseases or for preventing pregnancy or devices primarily intended for medical or healthcare use.

"Sexual device shop" means a commercial establishment that regularly features sexual devices. Nothing in this definition shall be construed to include any pharmacy, drug store, medical clinic, or any establishment primarily dedicated to providing medical or healthcare products or services, nor shall this definition be construed to include commercial establishments which does not restrict access to their premises by reason of age.

"Sexually oriented business" means an "adult bookstore or adult video store," an "adult cabaret," an "adult motion picture theater," or a "sexual device shop."

"Specified anatomical areas" means and includes:

1. Less than completely and opaquely covered: human genitals, pubic regions, buttock, and female breast below a point immediately above the top of the areola; and

2. Human male genitals in a discernibly turgid state, even if completely and opaquely covered.

"Specified criminal activity" means any of the following specified crimes for which less than five years elapsed since the date of conviction or the date of the release from confinement imposed for that conviction, whichever is the later date:

1. Prostitution; promotion of prostitution; aggravated promotion of prostitution; compelling prostitution; obscenity; sale, distribution or display of harmful material to minor; sexual performance by a child; employment harmful to children; or possession or promotion of child pornography; as defined in Chapter 43 of the Texas Penal Code;

2. Public lewdness; indecent exposure; or indecency with a child; as defined in Chapter 21 of the Texas Penal Code;

3. Sexual assault or aggravated sexual assault as defined in Chapter 22 of the Texas Penal Code;

4. Criminal attempt, solicitation or conspiracy to commit any of the foregoing offenses; or

5. Any offense in another jurisdiction that, had the predicate act(s) been committed in Texas, would have constituted any of the foregoing offenses.

"Specified sexual activity" means any of the following:

1. Intercourse, oral copulation, masturbation or sodomy; or

2. Excretory functions as part of or in connection with any of the activities described in subsection 1., above.

"Substantial" means at least thirty-five percent of the item(s) so modified.

"Transfer of ownership or control" of a sexually oriented business means any of the following:

1. The sale, lease or sublease of the business;

2. The transfer of securities which constitute an influential interest in the business, whether by sale, exchange or similar means; or

3. The establishment of a trust, gift or other similar legal device which transfers the ownership or control of the business, except for transfer by bequest or other operation of law upon the death of the person possessing the ownership or control.

"Viewing room or booth" means the room, booth or area where a patron of a sexually oriented business would ordinarily be positioned while watching a film, videocassette, digital video disc, any electronically produced media or other video production which are characterized by their emphasis upon the display of specified sexual activities or specified anatomical areas.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012; Ord. No. 18968, § 25, 9-3-2019; Ord. No. 19242, § 1, 10-12-2021)

5.09.030 Classification.

The classifications for sexually oriented businesses shall be as follows:

A. Adult bookstore or adult video store;

B. Adult cabaret or adult lounge;

C. Adult motion picture theater or movie theatre;

D. Sexual device shop.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.09.040 License required.

A. Business license. It is unlawful for any person to engage in, conduct, or operate a sexually oriented business in the city without paying the established fee and obtaining a valid sexually oriented business license.

B. Employee license. It is unlawful for any person to be an "employee," as defined in this chapter, of a sexually oriented business in the city without paying the established fee and obtaining a valid sexually oriented business employee license, except that a person who is a licensee under a valid sexually oriented business license shall not be required to also obtain a sexually oriented business employee license.

C. Application. An applicant for a sexually oriented business license or a sexually oriented business employee license shall file in person at the office of the permit official a completed application made on a form provided by the permit official. A sexually oriented business may designate an individual with an influential interest in the business to file its application for a sexually oriented business license in person on behalf of the business. The application shall be signed as required by subsection D. herein and shall be notarized. An application shall be considered complete when it contains, for each person required to sign the application, the information and/or items required in this subsection C., accompanied by the appropriate established fee:

1. The applicant's full legal name and any other names used by the applicant in the preceding five years. Applicant is also required to include mother's maiden name;

2. Current address of the applicant;

3. Written proof of age, in the form of a driver's license or a copy of a birth certificate accompanied by a picture identification document issued by a governmental agency;

4. A current photograph of applicant;

5. If the application is for a sexually oriented business license, the business name, location, mailing address and phone number of the sexually oriented business;

6. If the application is for a sexually oriented business license, the name and business address of the statutory agent or other agent authorized to receive service of process;

7. A statement of whether an applicant has been convicted of or has pled guilty or nolo contendere to a specified criminal activity as defined in this chapter, and if so, each specified criminal activity involved, including the date, place and jurisdiction of each as well as the dates of conviction and release from confinement, where applicable;

8. A statement of whether any sexually oriented business in which an applicant has had an

influential interest, has, in the previous five years (and at a time during which the applicant had the influential interest):

a. Been declared by a court of law to be a nuisance; or

b. Been subject to a court order of closure or padlocking;

9. An application for a sexually oriented business license shall be accompanied by a legal description of the property where the business is located and a sketch or diagram showing the configuration of the premises, including a statement of total floor space occupied by the business. The sketch or diagram need not be professionally prepared but shall be drawn to a designated scale or drawn with marked dimensions of the interior of the premises to an accuracy of plus or minus six inches. Applicants who are required to comply with the stage, booth and/or room configuration requirements of this chapter shall submit a diagram indicating that the setup and configuration of the premises meets the requirements of the applicable regulations.

At the time of filing an application, the filing applicant shall present himself or herself to the City of El Paso police department headquarters for the purpose of being fingerprinted and photographed. The police department shall take the photographs and fingerprints within four business hours of the time that the filing applicant presents himself or herself to be fingerprinted and photographed.

The information provided pursuant to this subsection C. shall be supplemented in writing by certified mail, to the permit official within ten working days of a change of circumstances which would render the information originally submitted false or incomplete.

D. Signature. A person who seeks a sexually oriented business employee license under this section shall sign the application for a license. If a person who seeks a sexually oriented business license under this section is an individual, he or she shall sign the application for a license as applicant. If a person who seeks a sexually oriented business license is other than an individual, each person with an influential interest in the sexually oriented business or in a legal entity that controls the sexually oriented business shall sign the application for a license as applicant. Each applicant must be qualified under this chapter and each applicant shall be considered a licensee if a license is granted.

E. The information provided by an applicant in connection with an application for a license under this chapter shall be maintained by the office of the permit official on a confidential basis, and such information may be disclosed only as may be required, and only to the extent required, by law or a court order.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.09.050 Issuance of license.

A. Business license. Upon the filing of a completed application for a sexually oriented business license, the permit official shall immediately issue a temporary license to the applicant if the completed application is from a pre-existing sexually oriented business that is lawfully operating in the city and the completed application, on its face, indicates that the applicant is entitled to an annual sexually oriented business license. The temporary license shall expire upon the final decision of the city to deny or grant an annual license. Within twenty days of the filing of a completed sexually oriented business license application, the permit official shall either issue a license to the applicant or issue a written notice of intent to deny a license to the applicant. The permit official shall issue a license unless:

1. An applicant is less than twenty-one years of age;

2. An applicant has failed to provide information required by this chapter for issuance of a license or has falsely answered a question or request for information on the application form;

3. The established license application fee required by this chapter has not been paid;

4. The sexually oriented business, as defined herein, is not in compliance with the interior configuration requirements of this chapter or is not in

compliance with locational requirements of Title 20 of this Code or any other portion of this Code;

5. Any sexually oriented business in which the applicant has had an influential interest, has, in the previous five years (and at a time during which the applicant had the influential interest):

a. Been declared by a court of law a nuisance; or

b. Been subject to an order of closure or padlocking;

6. An applicant has been convicted of or pled guilty or nolo contendere to a specified criminal activity, as defined in this chapter.

B. Employee license. Upon the filing of a completed application for a sexually oriented business employee license, the permit official shall immediately issue a temporary license to the applicant if the applicant seeks licensure to work in a licensed sexually oriented business and the completed application, on its face, indicates that the applicant is entitled to an annual sexually oriented business employee license. The temporary license shall expire upon the final decision of the city to deny or grant an annual license. Within twenty days of the filing of a completed sexually oriented business employee license application, the permit official shall either issue a license to the applicant or issue a written notice of intent to deny a license to the applicant. The permit official shall issue license unless:

1. The applicant is less than twenty-one years of age;

2. The applicant has failed to provide information as required by this chapter for issuance of a license or has falsely answered a question or request for information on the application form;

3. The established license application fee required by this chapter has not been paid;

4. Any sexually oriented business in which the applicant has had an influential interest, has, in the previous five years (and at a time during which the applicant had the influential interest):

a. Been declared by a court of law to be a nuisance; or

b. Been subject to an order of closure or padlocking;

5. The applicant has been convicted of or pled guilty or nolo contendere to a specified criminal activity, as defined in this chapter.

C. The license, if granted, shall state on its face the name of the person or persons to whom it is granted, the number of the license issued to the licensee(s), the expiration date, and, if the license is for a sexually oriented business, the address of the sexually oriented business. The sexually oriented business license shall be posted in a conspicuous place at or near the entrance to the sexually oriented business so that it may be read at any time that the business is occupied by patrons or is open to the public. A sexually oriented business employee shall keep the employee's license on his or her person or on the premises where the licensee is then working or performing.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012; Ord. No. 19242, §§ 2, 3, 10-12-2021)

5.09.060 Inspection.

Sexually oriented businesses and sexually oriented business employees shall permit the permit official, designated peace officers, code enforcement officers and inspectors from time to time on an occasional basis, onto the portions of the sexually oriented business premises where patrons are permitted, for the purpose of ensuring compliance with the specific regulations of this chapter, during those times when the sexually oriented business is occupied by patrons or is open to the public. This section shall be narrowly construed by the city to authorize reasonable inspections of the licensed premises pursuant to this chapter, but not to authorize a harassing or excessive pattern of inspections.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012; Ord. No. 18968, § 26, 9-3-2019)

5.09.070 Renewal of license.

A. Licenses may be renewed only by making application and payment of the established renewal fee.

B. Application for renewal of an annual license should be made at least ninety days before the expiration date of the current annual license, and when made less than ninety days before the expiration date, the expiration of the current license will not be affected.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.09.080 Suspension.

A. Business license. The permit official shall issue a written notice of intent to suspend a sexually oriented business license for a period not to exceed thirty days if the sexually oriented business licenses has knowingly violated this chapter or has knowingly allowed an employee to violate this chapter.

B. Employee license. The permit official shall issue a written notice of intent to suspend a sexually oriented business employee license if the employee has knowingly violated this chapter.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.09.090 Revocation.

A. The permit official shall issue a written notice of intent to revoke a sexually oriented business license or a sexually oriented business employee license, as applicable, if the licensee knowingly violates this chapter on two or more occasions within a twelve-month period.

B. The permit official shall issue a written notice of intent to revoke a sexually oriented business license or a sexually oriented business employee license, as applicable, if:

1. The licensee has knowingly given false information in the application for the sexually oriented business license or the sexually oriented business employee license;

2. The licensee has knowingly or recklessly engaged in or allowed possession, use or sale of controlled substances on the premises of the sexually oriented business;

3. The licensee knowingly or recklessly engaged in or allowed prostitution on the premises of the sexually oriented business;

4. The licensee knowingly or recklessly operated the sexually oriented business during a period of time when the license was finally suspended or revoked; or

5. The licensee has knowingly or recklessly engaged in or allowed any specified sexual activity to occur in or on the premises or the sexually oriented business.

C. The fact that any relevant conviction is being appealed shall have no effect on the revocation of the license, provided that, if any conviction which serves as a basis of a license revocation is overturned or reversed on appeal, that conviction shall be treated as null and of no effect for revocation purposes.

D. When, after the notice and hearing procedure described in this chapter, the city revokes a license, the revocation shall continue for one year and the licensee shall not be issued a sexually oriented business license or sexually oriented business employee license for one year from the date the revocation becomes effective.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.09.100 Hearing; denial, revocation and suspension; appeal.

A. When the permit official issues a written notice of intent to deny, suspend, or revoke a license, the permit official shall immediately send such notice, which shall include the specific grounds under this chapter for such action, to the applicant or licensee (respondent) by personal delivery or certified mail. The notice shall be directed to the most current business address or other mailing address on file with the permit official for the respondent. The notice shall specify a date, not less than ten days nor more than twenty days after the date the notice is issued, on which the hearing officer shall conduct a hearing on the permit official's written notice of intent to deny, suspend, or revoke the license.

At the hearing, the respondent shall have the opportunity to present all of respondent's arguments and to be represented by counsel (at respondent's expense), present evidence and witnesses on

his or her behalf, and cross-examine any of the permit official's witnesses. The permit official shall also be represented by counsel, and shall bear the burden of proving the grounds for denying, suspending, or revoking the license. The hearing shall take no longer than two days, unless extended at the request of the respondent to meet the requirements of due process and proper administration of justice. The hearing officer shall issue a written decision, including specific reasons for the decision pursuant to this chapter, to the respondent within five days after the hearing. The decision shall include a statement advising the respondent of the right to appeal such decision to a court of competent jurisdiction.

If the decision is to deny, suspend, or revoke the license, the decision shall become effective on the thirtieth day after it is rendered. If the hearing officer's decision finds that no grounds exist for denial, suspension, or revocation of the license, the hearing officer shall, contemporaneously with the issuance of the decision, order the permit official to immediately withdraw the intent to deny, suspend, or revoke the license and to notify the respondent in writing by certified mail of such action. If the respondent is not yet licensed, the permit official shall contemporaneously therewith issue the license to the applicant.

B. If any court action challenging a license denial, suspension, or revocation is initiated, the city shall prepare and transmit to the court a transcript of the hearing within ten days after receiving written notice of the filing of the court action. The city shall comply with any expedited schedule set by the court, and shall facilitate prompt judicial review of the proceedings. The following shall apply to any sexually oriented business that is lawfully operating as a sexually oriented business, or any sexually oriented business employee that is lawfully employed as a sexually oriented business employee, on the date on which the completed business or employee application, as applicable, is filed with the city official: Upon the filing of any court action to appeal, challenge, restrain, or otherwise enjoin the city's enforcement of the denial, suspension, or revocation, the permit official shall immediately issue the respondent a provisional license. The provisional license shall allow the respondent to continue operation of the sexually oriented business or to continue employment as a sexually oriented business employee and will expire upon the court's entry of a judgment on the respondent's appeal or other action to restrain or otherwise enjoin the city's enforcement.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012; Ord. No. 18968, § 27, 9-3-2019)

5.09.110 Transfer of license.

A licensee shall not transfer his or her license to another, nor shall a licensee operate a sexually oriented business under the authority of a license at any place other than the address designated in the sexually oriented business license application.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.09.120 Hours of operation and supervision of premises.

A. No sexually oriented business shall be or remain open for business between 2:00 a.m. and 6:00 a.m. on any day.

B. The licensee or manager named and approved with respect to issuance of a permit or the holder of the current manager's permit, shall be present on the premises of a sexually oriented business at all times when the establishment is in operation.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.09.130 Regulations pertaining to exhibition of sexually explicit films or videos.

A. A person who operates or causes to be operated a sexually oriented business which exhibits in a booth or viewing room on the premises, through any mechanical or electronic image-producing device, a film, video cassette, digital video disc, or other video reproduction characterized by an emphasis on the display of specified sexual activities or specified anatomical areas shall comply with the following requirements.

1. Each application for a sexually oriented business license shall contain a diagram of the

premises showing the location of all operator's stations, booths or viewing room, overhead lighting fixtures, and restrooms, and shall designate all portions of the premises in which patrons will not be permitted. Restrooms shall not contain equipment for displaying films, video cassettes, digital video discs, any electronically produced media or other video productions. The diagram shall also designate the place at which the license will be conspicuously posted, if granted. A professionally prepared diagram in the nature of an engineer's or architect's blueprint shall not be required; however, each diagram shall be oriented to the north or to some designated street or object and shall be drawn to a designated scale or with marked dimensions sufficient to show the various internal dimensions of all areas of the interior of the premises to an accuracy of plus or minus six inches. The permit official may waive the foregoing diagram for renewal applications if the applicant adopts a diagram that was previously submitted and certifies that the configuration of the premises has not been altered since it was prepared.

2. It shall be the duty of the operator, and of any employees present on the premises, to insure that no patron is permitted access to any area of the premises, which has been designated as an area in which patrons will not be permitted.

3. The interior premises shall be equipped with overhead lighting fixtures of sufficient intensity to illuminate every place to which patrons are permitted access at an illumination of not less than five foot candles as measured at the floor level. It shall be the duty of the operator, and of any employees present on the premises, to insure that the illumination described above is maintained at all times that the premises is occupied by patrons or open for business.

4. It shall be the duty of the operator, and of any employees present on the premises, to insure that no sexual activity occurs in or on the licensed premises.

5. It shall be the duty of the operator to post conspicuous signs in well-lighted entry areas of the business stating all of the following:

a. That the occupancy of viewing rooms less than one hundred fifty square feet is limited to one person;

b. That sexual activity on the premises is prohibited;

c. That the making of openings between viewing rooms is prohibited;

d. That violators will be required to leave the premises;

e. That violations of these regulations are unlawful.

6. It shall be the duty of the operator to enforce the regulations articulated in subsections 5.a. through d. above.

7. The interior of the premises shall be configured in such a manner that there is an unobstructed view from an operator's station of every area of the premises, including the interior of each viewing room but excluding restrooms, to which any patron is permitted access for any purpose. An operator's station shall not exceed thirty-two square feet of floor area. If the premises has two or more operator's stations designated, then the interior shall be configured in such a manner that there is an unobstructed view of each area of the premises to which any patron is permitted access for any purpose from at least one of the operator's stations. The view required in this paragraph must be by direct line of sight from the operator's station. It is the duty of the operator to insure that at least one employee is on duty and situated in each operator's station at all times that any patron is on the premises. It shall be the duty of the operator, and it shall also be the duty of any employees present on the premises, to insure that the view area specified in this paragraph remains unobstructed by any doors, curtains, walls, merchandise, display racks or other materials or enclosures at all times that any patron is present on the premises.

B. It shall be unlawful for a person having a duty under this section to knowingly fail to fulfill that duty.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.09.140 Loitering, exterior lighting, visibility and monitoring requirements.

A. It shall be the duty of the operator of a sexually oriented business to: (1) post conspicuous signs stating that no loitering is permitted on such property; (2) designate one or more employees to monitor the activities of persons on such property by visually inspecting such property at least once every ninety (90) minutes or inspecting such property by use of video cameras and monitors; and (3) provide lighting of the exterior premises to provide for visual inspection or video monitoring to prohibit loitering. If used, video cameras and monitors shall operate continuously at all times that the premises are open for business. The monitors shall be installed within an operator's station.

B. It is unlawful for a person having a duty under this section to knowingly fail to fulfill that duty.

C. No sexually oriented business shall erect a fence, wall, or other barrier that prevents any portion of the parking lot(s) for the establishment from being visible from a public right-of-way.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.09.150 Penalties and enforcement.

A. A person who knowingly engages in or permits another person to engage in a specified sexual activity on the premises of a sexually oriented business shall be guilty of a Class A misdemeanor. A person who engages in any violation of this chapter other than a specified sexual activity violation shall be guilty of a Class C misdemeanor. Each day a violation is committed, or permitted to continue, shall constitute a separate offense.

B. Any premises, building, or other structure in which a sexually oriented business, as defined in this chapter, is repeatedly operated or maintained in violation of the provisions of this chapter shall constitute a public nuisance and shall be subject to abatement proceedings initiated by the City of El Paso in a court of competent jurisdiction. Three violations of this chapter in a twelve-month period shall constitute repeated operation or maintenance as discussed in the preceding sentence.

C. The city's legal counsel is hereby authorized to institute civil proceedings necessary for the enforcement of this chapter to prosecute, restrain, or correct violations hereof. Such proceedings, including injunction, shall be brought in the name of the city, provided, however, that nothing in this section and no action taken hereunder, shall be held to exclude such criminal or administrative proceedings as may be authorized by other provisions of this chapter, or any of the laws in force in the city or to exempt anyone violating this Code or any part of the said laws from any penalty which may be incurred.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.09.160 Applicability of ordinance to existing businesses.

All existing sexually oriented businesses and sexually oriented business employees are granted a de facto temporary license to continue operation or employment for a period of ninety days following the effective date of this chapter. By the end of said ninety days, all sexually oriented businesses and sexually oriented business employees must conform to and abide by the requirements of this chapter.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.09.170 Prohibited conduct.

It is unlawful for a sexually oriented business licensee to knowingly violate the following regulations or to knowingly allow an employee or any other person to violate the following regulations.

A. It shall be a violation of this chapter for a patron, employee, or any other person to knowingly or intentionally, in a sexually oriented business, appear in a state of nudity, regardless of whether such public nudity is expressive in nature.

B. It shall be a violation of this chapter for a person to knowingly or intentionally, in a sexually oriented business, appear in a semi-nude condition unless the person is an employee who, while semi-nude, remains at least six feet from all patrons and on a stage at least eighteen inches from the floor in a room of at least six hundred square feet.

C. It shall be a violation of this chapter for any employee who while appearing semi-nude in a sexually oriented business to knowingly or intentionally touch a customer or the clothing of a customer on the premises of a sexually oriented business.

D. It shall be a violation of this chapter for any person to allow a person under the age of twenty-one years to come or remain on the premises of a sexually oriented business as an employee or to allow a person under the age of eighteen years to come or remain on the premises of a sexually oriented business as a patron.

A sign in a form to be prescribed by the permit official, and summarizing the provisions of subsections A. through D. of this section shall be posted near the entrance of the sexually oriented business in such a manner as to be clearly visible to patrons upon entry.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012; Ord. No. 19242, § 4, 10-12-2021)

5.09.180 Scienter required to prove violation or business licensee liability.

This chapter does not impose strict liability. Unless a culpable mental state is otherwise specified herein, a showing of a knowing or reckless mental state is necessary to establish a violation of a provision of this chapter. Notwithstanding anything to the contrary, for the purposes of this chapter, an act by an employee that constitutes grounds for suspension or revocation of that employee's license shall be imputed to the sexually oriented business licensee for the purposes of finding a violation of this chapter, or the purposes of license denial, suspension, or revocation, only if an officer, director, or general partner, or a person who managed, supervised, or controlled the operation of the business premises, knowingly or recklessly allowed such act to occur on the premises. It shall be a defense to liability that the person to whom liability was imputed was powerless to prevent the act.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.09.190 Failure of city to meet deadline not to risk applicant/licensee rights.

In the event that a city official is required to act or to do a thing pursuant to this chapter within a prescribed time, and fails to act or to do such thing within the time prescribed, said failure shall not prevent the exercise of constitutional rights of an applicant or licensee. If the act required of the city official under this chapter, and not completed in time prescribed, includes approval of condition(s) necessary for approval by the city of an applicant or licensee's application for sexually oriented business employee's license (including a renewal), the license shall be deemed granted and the business or employee allowed to commence operations or employment the day after the deadline for the city's action has passed.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.09.200 Severability.

This chapter and each section and provision of said chapter hereunder, are declared to be independent divisions and subdivisions and, notwithstanding any other evidence of legislative intent, it is declared to be the controlling legislative intent that if any provisions of said chapter, or the application thereof to any person or circumstance is held to be invalid, the remaining sections or provisions and the application of such sections and provisions to any person or circumstances other than those to which it is held invalid, shall not be affected thereby, and it is declared that such sections and provisions would have been passed independently of such section or provision so known to be invalid. Should any procedural aspect of this

chapter be invalidated, such invalidation shall not affect the enforceability of the substantive aspects of this chapter.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.09.210 Conflicting code provisions repealed.

Any provision(s) in the El Paso City Code specifically in conflict with any provision in this chapter is deemed inoperative and repealed.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.09.220 Effective date.

Upon adoption, the provisions of this chapter shall apply to the activities of all sexually oriented businesses and sexually oriented business employees defined herein, whether such businesses or activities were established or commenced before, on or after the effective date of this chapter, which was February 29, 2012. All existing sexually oriented businesses that are operating under an existing license from the city shall continue operation under the same license and renew said license when applicable under this chapter. By August 10, 2007, all sexually oriented business must make any and all necessary changes to the interior configuration of the regulated business premises to conform to this chapter. All employees of sexually oriented businesses must make application for a license pursuant to this chapter by August 10, 2007, and thereafter, within ten days of becoming an employee subject to this chapter.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

Chapter 5.10

TATTOO AND BODY ART STUDIO REGISTRATION AND ARTIST LICENSE*

Sections:

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Article II. Studio Registration

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***Editor's note—**Ord. No. 17843, § 1, passed July 31, 2012, effective January 1, 2013, repealed the former Ch. 5.10, §§ 5.10.010—5.10.110, and enacted a new Ch. 5.10 as set out herein. The former Ch. 5.10 pertained to tattooing and body piercing licenses and derived from Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012.

Article I. General Provisions

5.10.010. Compliance required.

A. A person shall not operate or maintain a tattoo or body art studio unless the person holds either a tattoo or body piercing studio license issued by the Texas Department of State Health Services.

B. All persons subject to regulation by this Chapter 5.10 shall also comply with all health standards regulating tattooing and the application of body art, including, but not limited to those found in the Texas Administrative Code, Title 25, Health Services, Part I, Texas Department of State Health Services, Chapter 229, Food and Drug, Subchapter V, Minimum Standards for Licensure of Tattoo and Certain Body Piercing Studios, Sections 229.401 et seq., the Texas Health and Safety Code, Chapter 146, Tattoo and Certain Body Piercing Studios, Sections 146.001 et seq., and 29 CFR 1910.1030 Bloodborne Pathogens. These standards are in addition to any municipal, state or federal laws applicable to the operation and facility use and maintenance of a business offering tattoo or body art services.

(Ord. No. 17843, § 1, 7-31-2012, eff. 1-1-2013)

5.10.020 Definitions.

A. "Artist" means a person who performs tattooing, intradermal cosmetics and/or the application of body art, and who is responsible for complying with the provisions of this chapter.

B. "Body art" means a form of permanently modifying a part of the human body, including but not limited to body piercing, scalpelling, scarring, and branding.

C. "Body piercing" means the creation of an opening in an individual's body, other than in an individual's earlobe, to insert jewelry or another decoration.

D. "Branding" means the permanent marking of the skin by burning with a hot or cold branding iron.

E. "Department" means the department designated by the city manager to administer the provisions of this chapter.

F. "Director" means the city official designated by the city manager to enforce the provisions of this chapter.

G. "Ear piercing" means the creation of an opening in an individual's ear with an ear piercing gun to insert jewelry or other decoration, without using scalpelling.

H. "Ear piercing gun" means a device that pierces an individual's ear using a single-use (one-time, one-person use) stud and clasp ear piercing system. An ear-piercing gun shall not be used to pierce any other part of the body except the ear.

I. "Intoxicated" means not having the normal use of mental or physical faculties by reason of the introduction of alcohol, a controlled substance, a drug, a dangerous drug, a combination of two or more of those substances, or any other substance into the body.

J. "Jewelry" means any personal ornament inserted into a pierced area, which must be made of surgical implant grade stainless steel (minimum of 316L or 316LVM), solid 14k or 18k gold, niobium, titanium (minimum of 6A14V), or platinum, which is free of nicks, scratches, or irregular surfaces and has been properly sterilized prior to use.

K. "Person" means any person, firm, partnership, association, corporation, company or organization of any kind.

L. "Piercing" means puncturing a part of the body for the purpose of the insertion of jewelry or adornments.

M. "Scalpelling" means a procedure similar to piercing; however, a scalpel or sharp instrument is used for the piercing in place of a needle.

N. "Scarring" means the scratching, etching, or superficial cutting of the skin with designs, patterns, pictures or images.

O. "Studio" means a building or portion of a building, designated by a license holder and located and occupied in accordance with applicable local zoning and building codes where tattooing is performed and/or body art or intradermal cosmetics is applied, completely separated from living quarters; hereafter referred to as studio, and includes a location that is identified or permitted as a temporary location under state law.

P. "Supplies" means any item used for the purpose of tattooing or applying body art or items used for hygienic purposes while tattooing or applying body art, including but not limited to needles, scalpels, branding implements, inks or pigments, gloves, towels, soap, and autoclaves.

Q. "Tattoo" means the practice of producing an indelible mark or figure on the human body by scarring or inserting a pigment under the skin using needles, scalpels, or other related equipment. The term includes the application of permanent cosmetics.

R. "Tattooing" means the practice of producing an indelible mark or figure on the human body by scarring or inserting a pigment under the skin using needles, scalpels or other related devices including intradermal cosmetics.

(Ord. No. 17843, § 1, 7-31-2012, eff. 1-1-2013; Ord. No. 18968, § 28, 9-3-2019)

Article II. Studio Registration

5.10.030 Studio registration required.

A. A studio registration shall be required for any studio where tattooing or the application of body art is performed. No studio shall be allowed to perform tattooing or the application of body art without first having obtained and paid for a valid registration from the permit official.

B. The studio registration certificate shall be displayed inside the studio during regular operation of the studio and shall be visible for inspection by artists, clients and city officials.

C. The registration requirements of this chapter do not apply to:

1. a studio or temporary operation located within a medical facility which is licensed under another law, or an office or clinic of a person licensed by the Texas State Board of Medical Examiners; or

2. a facility in which only ear piercing is performed.

D. A registered studio shall only employ and/or allow the use of its studio by artists in possession of a current, valid artist license issued by the City of El Paso, and must adhere to the following:

1. The studio must at all times maintain and have available for inspection a list, on a form provided by the city, with the name of each artist employed by and/or allowed the use of the studio;

2. Any artist no longer employed by or allowed use of the studio shall be recorded as a strikeout on the list; and

3. Each strikeout shall be shown on said list for a period of two years from the date that the strikeout is made.

E. Studio shall adhere to the following hygiene requirements:

1. Studio shall maintain studio hygiene, public health and safety standards in accordance with applicable state and federal regulations.

2. Studio shall supply, at minimum, one hand-washing station, in accordance with applicable state and federal law, and the following requirements:

a. Hand-washing station shall be labeled with a permanent sign "HAND-WASHING ONLY" with black print letters at least two inches in height on a white background in a clearly visible location directly above the station; and

b. Cleaning, sterilization or storage of supplies in or at the hand-washing station is prohibited.

3. Studios offering or allowing branding in their facility must comply with all of the city, state and federal health and safety regulations applicable to tattooing and body piercing that are mentioned in Section 5.10.010 of this City Code.

F. Studio shall offer to licensed artists only those supplies that conform to the hygiene, public health and safety standards required by applicable state and federal regulations, and may not, at any time, offer these supplies for use by an artist that is not in possession of a current, valid artist license as described in this chapter.

G. Studio shall, at a minimum, conform to the following standards when storing supplies at the studio:

1. Supplies shall be stored in accordance with manufacturer's specifications; and

2. Supplies shall not be stored directly on the floor unless stored in a fully-enclosed storage container that is kept closed at all times when not adding to or removing supplies from container.

H. No studio shall offer solely branding; branding shall only be allowed in a studio that also offers either tattooing and/or the application of body art other than branding.

(Ord. No. 17843, § 1, 7-31-2012, eff. 1-1-2013)

5.10.040 Studio registration application.

A. A studio owner seeking to perform tattooing and/or the application of body art shall submit a signed, verified application, with the established application fee(s), to the permit official. Applications shall be on forms obtained from the permit official and shall contain, as a minimum, the following information:

1. Full name of owner of studio;

2. Address of owner of studio;

3. Address of studio;

4. Indication if existing studio (in operation for the preceding twelve months) or new studio;

5. Copy of current tattoo or body piercing license issued by the Texas Department of State Health Services;

6. A current, valid certificate of occupancy issued by the building official for the studio; and

7. Any other information as required by the application.

(Ord. No. 17843, § 1, 7-31-2012, eff. 1-1-2013)

5.10.050 Studio registration application processing.

A. Upon receipt of a proper application as provided in this chapter and payment of the established fee, the permit official shall review and process the application.

B. The permit official shall issue the registration unless he finds that the registration should be denied as provided in Section 5.10.140 of this Code.

C. The term of a registration issued under this chapter shall be for such period of time that coincides with the studio's tattoo or body piercing license issued by the Texas Department of State Health Services. Upon the issuance of a renewal of a tattoo or body piercing license by the state, the registrant shall, within twenty days of receiving such renewal, apply to the permit official for renewal of the city's registration. Applications for a renewal shall be processed in the same manner as an original application.

D. In the event the permit official denies the application, the applicant shall be notified in writing as to the reason(s) for the denial, as set forth in Section 5.10.140 of this Code.
(Ord. No. 17843, § 1, 7-31-2012, eff. 1-1-2013)

5.10.060 No transfer of registration.

A studio registration shall not be transferred to any person for any use or benefit. Any change in ownership or registered studio location shall require a new studio registration application and registration.
(Ord. No. 17843, § 1, 7-31-2012, eff. 1-1-2013)

Article III. Artist License

5.10.070 Artist license required.

A. An artist license shall be required for any artist that performs tattooing or the application of body art. No person shall engage in the practice of tattooing or the application of body art without first having obtained and paid for a valid license from the permit official.

B. Licensed artists shall be required to have said license and valid state-issued photographic identification in their possession and available for inspection by studio owners, clients and city officials at all times when performing tattooing or body art.

C. The license requirements of this chapter do not apply to persons who engage only in performing ear piercing.

D. A licensed artist shall only perform tattooing or the application of body art at a studio that has obtained a current, valid studio registration from the City of El Paso.

E. When performing tattooing or the application of body art, an artist shall use only supplies, whether provided by the registered studio or the licensed artist, that conform to the health and safety standards required by applicable state and federal law.
(Ord. No. 17843, § 1, 7-31-2012, eff. 1-1-2013)

5.10.080 Artist license application.

A. Each artist seeking to perform tattooing and/or body art shall submit a signed, verified application annually, with the appropriate application fee(s), to the permit official. Applications shall be on forms obtained from the permit official and shall contain, at a minimum, the following true and correct information:

1. Full name of artist;
2. Address of artist;
3. Proof of identification of artist, in the form of a government-issued photographic identification; and
4. Any other information as required by the application.

(Ord. No. 17843, § 1, 7-31-2012, eff. 1-1-2013)

5.10.090 Application processing.

A. Upon receipt of a proper application as provided in this chapter and payment of the established fee, the permit official shall review and process the application.

B. The permit official shall issue the license unless he finds that the registration should be denied as provided in Section 5.10.140 of this Code.

C. The license shall be valid for the term of one year. Artists in possession of an artist license must apply to the permit official for renewal no more than sixty days and no less than thirty days

prior to the expiration of the license to prevent a lapse in licensing. Applications for renewal shall be processed in the same manner as an original application.

D. In the event the permit official denies the application, the applicant shall be notified in writing as to the reason(s) for the denial, as set forth in Section 5.10.140 of this Code.
(Ord. No. 17843, § 1, 7-31-2012, eff. 1-1-2013)

5.10.100 License transfer.

An artist license cannot be transferred to another person for any use or benefit. An artist may, however, utilize the same valid artist license at more than one registered studio.
(Ord. No. 17843, § 1, 7-31-2012, eff. 1-1-2013)

Article IV. Enforcement and Fees

5.10.110 Enforcement authority.

The permit official and the director and their designees or any duly authorized representative, including but not limited to a designated peace officer, code enforcement officer and inspector, shall be authorized to administer and enforce the provisions of this chapter and to issue citations to any person violating the provisions of this chapter.
(Ord. No. 17843, § 1, 7-31-2012, eff. 1-1-2013; Ord. No. 18968, § 29, 9-3-2019)

5.10.120 Inspection.

A. The director or designee may enter at all reasonable times any studio to inspect, enforce, investigate any unsafe condition or violation and perform any duty imposed under this chapter or by state or federal law. If such studio is occupied the director shall first present proper credentials and request entry. If unoccupied, an effort shall be made to locate the owner or other person responsible for the premises to request entry.

B. If such entry is denied or permission cannot be obtained, the director shall have recourse to every remedy provided by law to secure entry.

C. When the director obtains a legal inspection warrant or other remedy to secure entry, the owner, occupant or person having charge, care or control of the building or premise shall, upon a proper request, promptly permit the director entrance to inspect and investigate pursuant to this chapter or other applicable state or federal law.

D. The director shall record all findings on an inspection report and furnish a copy of the report to the owner or person in charge.

E. The director shall provide a written notice, by means of the inspection report or otherwise, to the owner or person in charge of the studio when a violation of any provision of this chapter or other applicable state or federal law is determined, which shall include:

1. A description of each violation;

2. A specific, reasonable time period for correction of each violation;

3. A statement that the artist who receives said notice, or the owner or person in charge of the studio receiving said notice, may request a re-inspection through the city's appropriate office and pay the re-inspection fee authorized by city council; and

4. A statement that the registration is subject to suspension or revocation and that legal action may be taken for failure to comply with the notice.

F. An artist may be subject to inspection either during the studio inspection described in this Section 5.10.120, or as a result of a scheduled inspection arranged by the director.
(Ord. No. 17843, § 1, 7-31-2012, eff. 1-1-2013; Ord. No. 18574, § 1, 9-20-2016)

5.10.130 Fees.

The studio registrant or artist shall pay to the city all established fees for the registration and license provided in accordance with this chapter.
(Ord. No. 17843, § 1, 7-31-2012, eff. 1-1-2013)

Article V. Denial, Suspension, Revocation, and Appeals

5.10.140 Denial.

The permit official shall deny an application for studio registration or artist license, whether

original or renewal, by serving the applicant with written notice by hand-delivery or certified mail, return-receipt requested, if:

A. The applicant is found to be in violation of this chapter or found, in the opinion of the director, to pose a significant health risk to the public for failure to meet the minimum health standards set forth in this chapter; or

B. The permit official finds:

1. That the applicant has supplied false or incorrect information on any application for a registration or license;

2. That the applicant has failed to supply all information required on the application form;

3. That the applicant has failed to pay the application fee; or

4. In the case of the registration applicant, that the registration applicant is not in possession of a current, valid state of Texas-issued tattoo or body piercing license.

C. In the event that an applicant's current or prior registration or license is under suspension, no new license or suspension shall be issued until the term of such suspension has expired.

D. In the event that an applicant's current or prior registration or license is revoked, no new license or suspension shall be issued until the term of such revocation has expired.

E. The permit official shall issue the written notice of denial of a registration or license to the applicant which shall contain, as a minimum, the following:

1. The name of the applicant;

2. Statement that the registration or license is denied; and

3. Reason(s) for the denial.

(Ord. No. 17843, § 1, 7-31-2012, eff. 1-1-2013)

5.10.150 Suspension and revocation.

A. Suspension or revocation. The director may issue a written notice of intent to suspend for not more than sixty days or a written notice of intent to revoke an original or renewal registration or license subject to this chapter if the director determines that any of the following is true:

1. The registration or license holder supplied false or misleading information on any application for a registration or license;

2. The Texas Department of State Health Services has suspended or revoked the registrant's tattoo or body piercing registration or license;

3. The registration or license holder is found, after notice and opportunity for hearing, to be in violation of a provision of this chapter or a rule adopted under this chapter;

4. The registration or license holder is indebted to the city for fees or payment of penalties imposed by this chapter or by a rule adopted under this chapter; or

5. The license holder is found, after notice and opportunity for hearing, to have been intoxicated on the licensed premises.

B. The director may issue a written notice of intent to revoke a studio registration or an artist license, as applicable, if the studio owner or licensed artist violates this chapter on two or more occasions within a twelve-month period.

C. A studio registrant or licensed artist that has had his registration or license suspended or revoked shall be required to surrender the registration certificate or artist license to the director within seven calendar days of receiving notice from the city of suspension or revocation, regardless of whether the registrant or licensed artist requests an appeal in accordance with Section 5.10.160 of this Code. In the case of suspension, failure to surrender registration certificate or artist license within seven days of notice shall cause the director to revoke the registration or license. In the case of revocation, registrant's or licensee's period of revocation shall be extended to eighteen months before they can apply for a new registration or license.

1. A studio registrant or licensed artist shall not commence operations after the term of suspension has ended without first retrieving their registration or license from the director; and

2. A studio registrant or licensed artist shall not continue operations during the period of suspension of revocation of their registration or license.

D. Notice. The director shall issue a written notice of suspension or revocation of a registration or license to the registrant or artist, or a proposed suspension or revocation pursuant to subsection A.3., 4. or 5. of this section, which shall contain, as applicable, the following:

1. Name and address of the registrant and studio, or name and address of the artist;

2. Statement of whether the registration or license is suspended or revoked;

3. Reason(s) for the suspension or revocation;

4. Where applicable, order that the studio be closed;

5. Recommendation of corrective measures to bring the studio or artist into compliance with the requirements of this chapter;

6. Reasonable time limit for the completion of the corrective measures;

7. Statement that the registration or license, if suspended, is subject to revocation for failure to complete the corrective measures within the allotted time;

8. Order that the registration certificate or artist license be surrendered to the director within seven days of receipt of notice;

9. Statement that the registration or license, if suspended, is subject to revocation for failure to surrender registration certificate or artist license within the allotted time; and

10. Statement that the suspension or revocation may be appealed under the provisions set forth in Section 5.10.160 of this Code.

E. The director shall post a sign at any location where a studio registration has been suspended or revoked pursuant to this chapter. Said sign shall contain the following statement:

TATTOO OR BODY ART STUDIO CLOSED BY ORDER OF THE CITY OF EL PASO DEPARTMENT OF ENVIRONMENTAL SERVICES. VIOLATORS OF THIS ORDER ARE SUBJECT TO PROSECUTION PURSUANT TO TITLE 5 AND ANY OTHER APPLICABLE PROVISIONS OF THE EL PASO CITY CODE.

F. A studio registrant or licensed artist may not reapply for a new registration or license for a period of twelve months after said registration or license has been revoked.

(Ord. No. 17843, § 1, 7-31-2012, eff. 1-1-2013)

5.10.160 Appeals.

The right to appeal a registration or license denial, suspension or revocation shall be in accordance with Chapter 5.01.090 of the City Code.

(Ord. No. 17843, § 1, 7-31-2012, eff. 1-1-2013; Ord. No. 18968, § 30, 9-3-2019)

Article VI. Violation, penalty.

5.10.170 Immediate closure by director.

A. The director may order the immediate closure of a studio when there is a reasonable basis to believe that an individual contracted or was exposed to any communicable disease or disease of the skin while receiving a tattoo and/or application of body art at the studio. Immediately following such closure, the director shall proceed as appropriate under Section 5.10.150 of this Code regarding the status of the studio registration and licenses issued to any involved artists.

B. Failure to promptly comply with the notice of immediate closure shall subject the studio to other legal remedies as are available to the city.

C. Upon information that the Texas Department of State Health Services has suspended or revoked a tattoo or body piercing license of a registered studio, the director shall immediately suspend or revoke the studio registration, in accordance with Section 5.10.150 of this Code, for the period not to exceed the suspension or revocation specified by department of state health services.

(Ord. No. 17843, § 1, 7-31-2012, eff. 1-1-2013)

5.10.180 Violation and penalties.

Any person who violates a provision of this chapter shall, upon conviction, be guilty of a mis-

demeanor and punished by a fine not to exceed two thousand dollars. Each day the violation occurs shall constitute a separate offense. In addition to any penalties provided for herein, this chapter is enforceable by injunction.
(Ord. No. 17843, § 1, 7-31-2012, eff. 1-1-2013)

Chapter 5.11

MOTOR VEHICLE DEALERS

Sections:

5.11.010 License—Required.

5.11.020 License—Application—Contents.

5.11.030 License—Fee.

5.11.040 License—Revocation.

5.11.050 Place of business—Requirements.

5.11.060 State registration and title laws—Compliance with required.

5.11.070 Contracts with buyers when full purchase price not paid.

5.11.080 Warranties and representations—Dealer to furnish copies to buyer.

5.11.090 Reports to police.

5.11.010 License—Required.

No person, firm or corporation shall engage in the business of selling, bartering or exchanging motor vehicles without first paying the established fee and obtaining a license as herein provided.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.11.020 License—Application—Contents.

Application for such license shall be filed with the permit official in writing, sworn to by the applicant and accompanied by the established fee, and shall show:

A. The name and residence address of the owner or owners of the business, and if a corporation the names and residence address of the principal officer thereof. If any of the owners, or in the case of a corporation, the principal officer, is not a resident of El Paso County, then the application shall also show the name and residence address of an agent residing in El Paso County on whom process may be served;

B. The name under which the business is to be conducted and the location thereof. More than one location may be included in the same application. If the business is conducted under an assumed name the application shall show that the assumed name has been filed with the county clerk in accordance with state law;

C. The permit official may inspect the premises of the business at any time during business hours.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.11.030 License—Fee.

The established fee for the license shall be multiplied by the number of locations if there is more than one.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.11.040 License—Revocation.

The permit official may revoke any license hereunder for any false statement in the application, or for any violation of this chapter by the license holder, or for failure of the license holder to pay any judgment rendered against him by a court of competent jurisdiction for any fraud, misrepresentation or contractual default in a matter arising out of the licensed business.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.11.050 Place of business—Requirements.

Every dealer required to be licensed hereunder shall have a fixed place of business, on which there shall be an office, inside a building or other roofed structure, on which there shall be a sign showing the name (or properly filed assumed name) of the person, firm or corporation which holds the dealer's license. If the office is not kept open, with someone in attendance, at least eight hours between sunrise and sunset on every business day, the dealer shall post on the main door of the office a sign correctly showing the hours during which the office will be open, which shall not be less than three hours between sunrise and sunset on at least five days of each week. The office shall have telephone service, listed in the name (or properly filed assumed name) of the license holder. The license shall at all times be kept posted in the office in a place readily visible to customers.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.11.060 State registration and title laws—Compliance with required.

No dealer shall sell, barter or exchange any motor vehicle without complying with all registration and title laws of this state.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.11.070 Contracts with buyers when full purchase price not paid.

When any motor vehicle is sold and the full purchase price is not paid at the time of delivery, the contract with the buyer shall be in writing, with all blanks filled before the buyer signs and the dealer shall give a true signed copy of such contract to the buyer immediately after the contract is signed.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.11.080 Warranties and representations—Dealer to furnish copies to buyer.

Whenever the dealer gives any warranty, or makes any representation which the buyer would, under the law of contracts, be entitled to rely on, the dealer shall, before the sale or exchange is closed, give the buyer a signed written statement of such warranty or representation, unless the warranty or representation is included in a written contract between the parties or covered by the certificate of title. Failure of the dealer to comply with the requirement of this section shall not deprive the buyer of any right he may otherwise have to enforce any warranty or representation.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.11.090 Reports to police.

A. If, in connection with the doing of any business for which a license is required hereunder, a dealer finds that the motor number, serial number or manufacturer's number of any motor vehicle, motor, motor block, or any part thereof has been altered, changed, erased or mutilated, he shall immediately notify the police department, giving any information he may have as to the description, possession and location of the vehicle or part, as may be useful to the police in complying with the Texas Penal Code.

B. The dealer shall likewise report to the police department any vehicle or part thereof brought on the licensed premises, or offered as a trade-in elsewhere, when the dealer has reasonable grounds to believe that the certificate of title or license plates are false, or the vehicle or part has been stolen, or has been used in the commission of a crime.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

Chapter 5.12

DEALERS IN SECONDHAND GOODS, DEALERS IN CRAFTED PRECIOUS METALS, COIN DEALERS AND PAWNBROKERS*

Sections:

5.12.010 Definitions.

Article I. Dealers in Secondhand Goods

5.12.020 Policy.

5.12.030 Administration.

5.12.040 License—Required.

5.12.050 License—Term.

5.12.060 License—Application

5.12.070 License—Investigation—Issuance.

5.12.080 License—Denial; appeal.

5.12.090 Place of business—License restrictions.

5.12.100 Change of information.

5.12.110 Records—Required.

5.12.120 Inspection of goods and records.

5.12.130 Purchasing from minors.

5.12.140 Retained goods to be accessible.

5.12.150 Melting, wrecking and remodeling.

5.12.160 Exclusions.

Article II. Dealers In Crafted Precious Metals

5.12.160.5 State registration required to be filed with city.

5.12.170 Licensing, recordkeeping and goods retention requirements.

Article III. Coin Dealers, Coin Collection Conventions

5.12.180 Licensing, recordkeeping and goods retention requirements.

5.12.190 Registration.

Article IV. Pawnbrokers

5.12.200 Pawnbrokers licensed by the state.

5.12.210 Recordkeeping.

Article V. Violations—Penalty—Enforcement

5.12.220 Violations; penalty.

5.12.230 Enforcement.

*Editor's note—Ord. No. 18391, § 1, adopted July 28, 2015, amended Ch. 5.12 in its entirety to read as herein set out. Former Ch. 5.12 pertained to similar subject matter and derived from Ord. No. 18201, § 1, 7-1-2014; Ord. No. 17691, § 1, 12-6-2011.

5.12.010 Definitions.

A. "Crafted precious metal" means jewelry, silverware, an art object, or another object made wholly or partly from precious metal. Crafted precious metal does not include a coin, a bar, or commemorative medallion.

B. "Electronic Serial Number" or "ESN" means a number that uniquely identifies a mobile electronic device.

C. "Engaged in or conducting business" means the purchase, sale, barter or exchange of any secondhand goods including advertising therefore and including such business conducted by a secondhand dealer in a permanent location including, but not limited to, storefronts, flea-markets, mercados, swap meets, market places, open air markets, and kiosks.

D. "International Mobile Equipment Identifier" or "IMEI" means a number that uniquely identifies a mobile electronic device.

E. "Itinerant seller" means any individual, partnership, corporation, joint venture, trust, association or any other legal entity, however organized, as a temporary or transient business conducted in a shop, room, hotel room, motel room or other premises rented for any duration less than thirty consecutive days or used on a temporary basis, that sells, but does not purchase, barter or exchange, secondhand goods. (An itinerant seller is not a local dealer who must move his or her shop from its existing location to a new location within

the city due to loss of lease or voluntary move prior to the expiration of the minimum thirty-day period.)

F. "Jewelry" means a gem, a jewel, or an object made of crafted precious metal, including those set with precious or semi-precious stones but excluding costume jewelry, and that is usually worn for adornment, including, but not limited to, a gem stone removed from a mounting.

G. "Kiosk" means an interactive device that is permanently installed within a secure structure that performs all the requirements of this chapter and has the followingtechnological functions:

1. Capability to connect with a live customer service representative;

2. Verification of the identity of a seller by official U.S. state-issued identification;

3. Automated reading and recording of ESN and/or IMEI numbers;

4. Automated comparison of the ESN and/or IMEI numbers against databases of stolen devices;

5. Secure storage of devices accepted by the kiosk; and

6. Capture of images of the transaction.

H. "Pawnbroker" means a person engaged in the business of lending money on the security of pledged goods or purchasing goods on condition that the goods may be redeemed or repurchased by the seller for a fixed price within a fixed period.

I. "Power tool" means a tool powered by electrical current, a battery, solar energy, liquid or gaseous fuel, or pneumatic device.

J. "Precious metal" means gold, silver, platinum, palladium, iridium, rhodium, osmium, ruthenium, or an alloy of those metals.

K. "Regulated merchandise" includes, but is not limited to, an item that bears or, as originally manufactured, bore a manufacturer's serial number; a crafted precious metal; jewelry; an automobile accessory; a motorcycle accessory; a business machine; a power tool; a sporting good; an electronic device; a musical instrument or an accessory used with a musical instrument, including, but not limited to, sound amplification equipment; optical equipment, including binoculars, a telescope or microscope; photographic equipment; video recording; or secondhand goods.

L. "Respondent" means an applicant or licensee of a secondhand dealer's license that appeals a decision by the chief of police or a license official to deny a secondhand dealer's license.

M. "Secondhand dealer" means an individual, partnership, corporation, joint venture, trust, association or any other legal entity, however organized, buying, trading, selling, accepting for sale on consignment regulated merchandise, or otherwise engaged in or conducting business in the city as defined by this chapter.

N. "Secondhand goods" includes, but is not limited to, any of the following personal property or object of value that is not purchased or sold as new:

1. Jewelry;

2. Precious metal in whatever identifiable form, except for numismatic coins or bullions;

3. Any type of gem or precious stone, including, but not limited to, diamonds;

4. Consumer electronics including, but not limited to, those intended for everyday use, entertainment, communications and office productivity to include computers, tablets, telephones, cellular or mobile phones, mobile telephones with computing ability and connectivity, MP3 players, personal music players, radios, audio equipment, televisions, calculators, GPS automotive electronics, gaming devices, devices used in playing video or computer games, digital cameras and recorders using video media such as DVDs, VCRs, blue rays or camcorders;

5. Hand tools, power tools and gardening tools;

6. Sporting goods, including, but not limited to, bicycles, golf clubs, tennis rackets, archery bows, binoculars, and camping equipment; or

7. Musical instruments.

Secondhand goods do not include property purchased by one licensed, established merchant in the normal course of business from another licensed, established merchant.

(Ord. No. 18391, § 1, 7-28-2015; Ord. No. 18449, § 1, 12-15-2015)

Article I. Dealers in Secondhand Goods

5.12.020 Policy.

It is declared to be the policy of the city, in the exercise of its police power for the protection of the safety, health and welfare of its citizens to regulate engaging in or conducting business in secondhand goods.
(Ord. No. 18391, § 1, 7-28-2015; Ord. No. 18449, § 1, 12-15-2015)

5.12.030 Administration.

In accordance with this policy, the chief of police, or designee(s), may establish rules and forms to administer and enforce this article.
(Ord. No. 18391, § 1, 7-28-2015; Ord. No. 18449, § 1, 12-15-2015)

5.12.040 License—Required.

It is unlawful for an individual, partnership, corporation, joint venture, trust, association or other legal entity to engage in the business of secondhand goods without first paying the established non-refundable fee(s) and obtaining a license therefore, as hereinafter provided. A separate application and license will be required for each location, place or premises used for the conducting of the business of the secondhand dealer. A separate established non-refundable fee will be charged for each additional license issued.
(Ord. No. 18391, § 1, 7-28-2015; Ord. No. 18449, § 1, 12-15-2015)

5.12.050 License—Term.

Licenses issued pursuant to this chapter will expire one-year from the date of issuance, unless otherwise provided in this chapter.
(Ord. No. 18391, § 1, 7-28-2015; Ord. No. 18449, § 1, 12-15-2015)

5.12.060 License—Application

Applicants for a new or renewal license under this article must file with the license official a written sworn application signed by the applicant. If the applicant is an individual, the application must be signed by the individual. If the applicant is a legal entity organized under the laws of the State of Texas, the application must be signed by a duly authorized entity representative with authority to bind the entity. The authorized entity representative shall verify his or her authority to bind the entity by a sworn statement reflecting said authority. All applicants must complete the approved city application that is available online or in paper form.

Applicants wanting to renew a license may begin the standard license renewal application process ninety calendar days, but no later than forty-five calendar days, before the expiration of the existing license. If the applicant begins the license renewal application process after the expiration of the forty-five calendar days, but before the expiration of the existing license, the applicant will pay an expedited application review fee.

There is no guarantee that a timely review and approval of the renewal license application will occur prior to the expiration of the existing license, if the applicant submits the license renewal application after the fifteen calendar days from the expiration of the existing license.

If the license renewal application has been duly completed and filed and all required fees have been paid before the expiration of the existing license, the existing license will continue in effect until final action by the city is taken on the renewal license application.
(Ord. No. 18391, § 1, 7-28-2015; Ord. No. 18449, § 1, 12-15-2015)

5.12.070 License—Investigation—Issuance.

Upon receipt of an application for a license in accordance with the provisions of Section 5.12.060, the license official or the chief of police designee(s), will conduct an investigation to determine if there are grounds to deny the license. If there are no grounds for denial, the license official will issue a license no later than thirty city business days following the date of the filing of the application.
(Ord. No. 18391, § 1, 7-28-2015; Ord. No. 18449, § 1, 12-15-2015)

5.12.080 License—Denial; appeal.

A. The chief of police or the license official may deny a secondhand dealer license for the violation of any provision of this chapter by providing the applicant with a statement indicating the reason(s) for the denial.

B. The license official will issue a written statement notifying the applicant of denial of the secondhand dealer license if the investigation reveals one or more of the following:

1. The applicant's place of business is not in compliance with applicable state laws or local ordinances; or

2. An individual applicant or any employee of an entity applicant, whose duties include the purchase or sale of regulated merchandise, has been convicted of a criminal offense involving theft, burglary, robbery, fraud, or tampering with or falsification of evidence or official records, unless:

a. The applicant or employee has been pardoned; or

b. One year has elapsed since the applicant or employee has been fully discharged from the sentence imposed for the offense, including any term of incarceration, parole, supervision, or probation ordered by any court; or

c. The criminal proceedings were deferred without a final adjudication of guilt; or

3. Fraud, misrepresentation or false statement of facts of material consequence in the application; or

4. Six or more violations of this chapter within twelve months immediately preceding the current application by the applicant, any employee of the applicant, whose duties include the purchase of regulated merchandise, or the combined violations of both the applicant and the employee.

C. When the license official issues a written notice of denial of a license to the applicant, the license official will include, in the notice, the specific grounds under this chapter for such action. The notice will be sent to the applicant by personal delivery or certified mail. The notice will be directed to the most current business address or other mailing address on file with the license official for the applicant.

D. The written notice of denial of a license will include a notice provision informing the applicant of his or her right to appeal the license official's decision by submitting a written notice requesting an administrative hearing before a municipal associate judge. The applicant, referred to as the respondent for purposes of the appeal, will submit the written statement to the license official not later than the fifteenth city business day after the date of the written notice of denial of the license. The respondent's written statement requesting the appeal shall clearly state why the respondent contends that there is not a valid basis for the denial of the license.

If the respondent submits a written statement appealing the denial of the license, the chief of police or license official, or their designee(s), will immediately contact the city attorney's office in order to coordinate the retention of a municipal associate judge and to schedule a hearing. The notice of the hearing will specify a hearing date, not less than fifteen city business days nor more than thirty city business days after the date the applicant files the written notice requesting an administrative hearing. The municipal associate judge will conduct a hearing on the license official's denial of the license. The hearing may be continued to a sooner or later date by agreement of the parties, and with the municipal associate judge's approval, or upon the finding of good cause by the municipal associate judge for the granting of an earlier or later hearing date.

At the hearing, the respondent will have the opportunity to present all of the respondent's arguments and to be represented by counsel at respondent's expense, present evidence and witnesses on his or her behalf, and cross-examine any of the license official's witnesses. The license official, who may also be represented by counsel, bears the burden of proving the grounds for denying the license by a preponderance of the evidence. The hearing will take no longer than one business

day, unless extended by agreement of the parties or at the request of either party, and with approval of the municipal associate judge, to meet the requirements of due process and the proper administration of justice.

The municipal associate judge will issue a written decision, including findings of fact and conclusions of law, to the respondent within five city business days from the completion of the hearing. The municipal associate judge's decision is final.

If the decision is to deny the license, the decision will become effective on the fourteenth calendar day after it is rendered. If the municipal associate judge's decision finds that no grounds exist for the denial of the license, the municipal associate judge will, contemporaneously with the issuance of the decision, order the license official to immediately withdraw the denial of the license and notify the respondent in writing by certified mail of such action. If the respondent is not yet licensed, the license official will contemporaneously therewith issue the license to the applicant.

If the respondent's application is for the renewal of a license, the existing license will remain valid and in effect during the pendency of the appeal and until such time as the decision of the municipal associate judge becomes final.

If the municipal associate judge's final decision upholds the denial of the license, the license official may grant the respondent a provisional license for a period of six months to begin from the date of the municipal associate judge's final decision. The provisional license will require the applicant to pay a non-refundable enhanced fee.

If during the six-month period, corrective action has been satisfactorily completed by the respondent as directed by the license official, and no other violations are committed under this chapter, or if no corrective action was required of the respondent by the license official, but no other violations are committed under this chapter, then the license official will issue the standard license to the applicant.

(Ord. No. 18391, § 1, 7-28-2015; Ord. No. 18449, § 1, 12-15-2015; Ord. No. 019640, § 1, 6-11-2024)

5.12.090 Place of business—License restrictions.

Any license issued under the provisions of this article will designate the place that the secondhand dealer will conduct business, and the business will not be conducted in any other place.

(Ord. No. 18391, § 1, 7-28-2015; Ord. No. 18449, § 1, 12-15-2015)

5.12.100 Change of information.

A. A secondhand dealer shall report a change in the information required to be submitted with a license application to the license official not later than the 15th city business day after the date that the change occurs.

B. If the change is either to the name of the business or to the physical location of the business, the secondhand dealer must obtain a new license and pay a new non-refundable license fee. The license official will issue a temporary license while the application for a new license is being processed. The applicant will reapply within thirty calendar days for the new license. The existing license will continue in effect until the city makes its final determination on the license application.

(Ord. No. 18391, § 1, 7-28-2015; Ord. No. 184449, § 1, 12-15-2015)

5.12.110 Records—Required.

A. Every secondhand dealer must keep a record of all transactions in a format prescribed by the chief of police.

B. The record must be maintained in the English language and in a clear, legible manner.

C. Secondhand dealers must 1) complete a secondhand dealer receipt that is sold by the city or 2) submit an electronic filing in a format acceptable to the city.

D. A secondhand dealer may not purchase, receive, or possess an item of regulated merchandise from which the manufacturer's identification or serial number or brand has been altered, removed, or obliterated by means other than by wear caused by ordinary use of the item by a consumer.

E. A secondhand dealer may not purchase or acquire any item that is stolen or that shows any indication of not belonging to the person offering such item for sale or purchase, unless:

1. The seller of the offered item(s) produces a valid receipt or other evidence of ownership or purchase of the item(s); or

2. The seller of the offered item(s) provides a signed and dated written statement including a description of how the seller came into possession of the item(s) and that the seller does not have a receipt. A copy of the receipt, document evidencing ownership or purchase, or written statement must be attached to, and retained with, records of the purchased or acquired item(s).

F. The records maintained by the secondhand dealer must be made at the time of the transaction, be sequentially numbered and include the following information or documentation:

1. Transaction date;

2. Secondhand dealer business name;

3. Secondhand store address to include street, city, state and zip code;

4. Confirmation of the seller's identification via a U.S. state-issued driver's license or identification card with a photo for kiosk transactions; , or via a U.S. state-issued driver's license or card with a photo or military identification card for transactions conducted in person as defined in this chapter as "engaged in or conducting business";

5. Seller's address including street, city, state and zip code;

6. The month, day and year that seller was born;

7. Seller's last name, first name, and middle name/initial;

8. Seller's hair color, eye color, height and weight;

9. An accurate and full description of secondhand goods to include, but not be limited to: serial numbers, model numbers, item type, make, model number engraving, inscriptions, color, size, length, unique markings, owner applied numbers, inventory number, metal, stone, karat and design must be recorded if applicable. Each individual item must be recorded fully and accurately as soon as commercially reasonable but no later than fifteen business days after the transaction. Stones must be described as to type, including results of electronic testing, color, shape, number, size and approximate weight. Class ring descriptions must also include school name, class year and any names or words noted or inscribed on the ring;

10. The price or consideration paid or received at the time of transaction;

11. All record entries must identify the person making the entry.

G. The secondhand dealer must maintain a record of all transactions for one year from the transaction date, even if the secondhand dealer no longer possesses or owns the property.

H. The secondhand dealer's records must be accessible during business hours, at the address that is listed on the secondhand dealer's license.

(Ord. No. 18391, § 1, 7-28-2015; Ord. No. 18449, § 1, 12-15-2015)

5.12.120 Inspection of goods and records.

Subject to applicable federal, state and local laws, the records, goods, articles or things purchased, received or kept for sale or exchange by every secondhand dealer must be made available for inspection by any member of the city police department upon demand during normal business hours.

(Ord. No. 18391, § 1, 7-28-2015; Ord. No. 18449, § 1, 12-15-2015)

5.12.130 Purchasing from minors.

No secondhand dealer will purchase, trade or deal in secondhand goods with any individual under the age of eighteen years of age without written consent of the minor's parent or guardian. This consent will become part of the record of the transaction, and must be included with all other records required under Section 5.12.110.

(Ord. No. 18391, § 1, 7-28-2015; Ord. No. 18449, § 1, 12-15-2015)

5.12.140 Retained goods to be accessible.

Every secondhand goods dealer must, for a minimum period of twenty days after acquiring the item, during regular business hours, keep accessible and available on the licensed premises, for inspection by any city peace officer, all secondhand goods, purchased or received from any person, before selling, shipping or otherwise disposing of the same. The twenty-day hold period begins the day that all description information required in Section 5.12.110(F) is recorded. Due to storage capacity limitations, a secondhand dealer operating via a kiosk may ship secondhand goods to an offsite, secure location for storage during the required hold period as long as the goods are available for inspection as prescribed by this chapter. Any items found to be recorded as stolen or otherwise subject to a civil or criminal investigation must be shipped to the requesting peace officer with all shipping costs to be borne by the secondhand goods dealer.

(Ord. No. 18391, § 1, 7-28-2015; Ord. No. 18449, § 1, 12-15-2015)

5.12.150 Melting, wrecking and remodeling.

A. If the secondhand dealer's intention is to melt, wreck and/or remodel the secondhand goods, the secondhand dealer must record all data required by section 5.12.110 and hold the secondhand goods for a minimum of twenty days in its original unaltered form.

B. Purchase of melted items. A secondhand dealer may not purchase an object that is formed as the result of melting precious metals, unless:

1. The object is purchased from a manufacturer or a dealer in precious metal; and

2. The seller provides a purchase receipt to the secondhand dealer who is purchasing the melted items that documents what the item was prior to melting. The acquiring secondhand dealer must provide the city police department a copy of the purchase receipt obtained from the seller along with any other necessary documentation upon request. The acquiring dealer must keep a copy of the purchase receipt at the licensed business.

3. A secondhand dealer selling to another secondhand dealer must provide documentation of where the melted item originated, i.e. a secondhand store ticket or other record in conformance with this chapter.

(Ord. No. 18391, § 1, 7-28-2015; Ord. No. 18449, § 1, 12-15-2015)

5.12.160 Exclusions.

The provisions of this article do not apply to the following businesses or dealers:

A. Junk businesses or dealers. Junk means discarded metal, glass, paper, cordage, rags, bones, rubber or other waste which may be treated so as to be used again in some form; vehicles or machines which are worn out and intended for scrapping; or any article or substance commonly considered to be junk. The term does not include secondhand articles or substances which are still usable for the purpose for which they were originally intended and are sold with a view to such further original use;

B. Used motor vehicles;

C. Dealers in antiques, art and collectibles. Dealers in antiques, art and collectibles are defined as any dealer who engages exclusively in the business or occupation of selling, bartering or exchanging any painting, furniture, china or other object that is valuable primarily by reasons of age, scarcity or the skill and craftsmanship of the artist(s) or artisan(s). Antiques will not include family heirlooms made of gold and silver or other precious metals. This exclusion does not exempt such dealers from compliance with this chapter with regard to any other secondhand goods in which they conduct business;

D. Coin collectors or coin shops that engage exclusively in the coin business or occupation, except as provided in Article II of this chapter. This exclusion does not exempt such dealers or businesses from compliance with the regulations, as hereinafter provided, in relation to any precious metal or crafted precious metal that they may engage in or conduct business in addition to their coin and bullion operations;

E. Neighborhood garage sales;

F. Nonprofit or charitable secondhand goods or thrift-type shops;

G. Licensed gun dealers who engage exclusively in the business or occupation of selling, buying, bartering or exchanging guns or firearms. This exclusion does not exempt such dealers from compliance with the regulations, as herein provided, in relation to any other secondhand goods that they may engage in or conduct business in addition to their gun business.

H. Itinerant sellers of secondhand goods;

I. A business that purchases cellular phones or electronic communication devices or consumer electronics in return for a non-cash credit such as a gift card from the issuing business, a credit at the issuing business or credit to an account with the issuing business, if:

1. As part of the record of the commercial transaction, the business will document: date, time and place of transaction; legal name, date of birth, residence and phone number(s) of seller; the credit amount; and employee's name handling the transaction. Such information will be retained by the business in accordance with applicable state and federal law standard retention obligations for commercial transactions. Any non-standard record retention obligations would require a formal request from law enforcement in accordance with applicable state and federal law.

2. On the day of the transaction to accept the used cellular phone or the electronic communication device, the business will cross-reference in a national lost and stolen database the ESN and/or IMEI. The business will refuse to accept any cellular phones or electronic communication devices or consumer electronics that have been recorded as lost or stolen in the database.

(Ord. No. 18391, § 1, 7-28-2015; Ord. No. 18449, § 1, 12-15-2015)

Article II. Dealers in Crafted Precious Metals

5.12.160.5 State registration required to be filed with city.

Dealers in crafted precious metals must file annually with the city a copy of the dealer's certificate of registration issued pursuant to the Texas Occupations Code or other applicable state or federal law.

(Ord. No. 18391, § 1, 7-28-2015)

Editor's note—Ord. No. 18391, § 1, adopted July 28, 2015, duplicated the numbering of § 5.12.160. In order to avoid duplicate section numbers, this section has been renumbered to 5.12.160.5 at the discretion of the editor.

5.12.170 Licensing, recordkeeping and goods retention requirements.

Dealers in crafted precious metals who also purchase, trade, barter or exchange any type of secondhand goods in conjunction with the crafted precious metal dealership will be subject to the record keeping, licensing and goods retention requirements established in Article I of this chapter with regard to the secondhand items.

(Ord. No. 18391, § 1, 7-28-2015)

Article III. Coin Dealers, Coin Collection Conventions

5.12.180 Licensing, recordkeeping and goods retention requirements.

Coin collectors and coin dealers will not be subject to the same recordkeeping and goods retention requirements as secondhand dealers so long as their dealings are limited to coins. However, if any such coin collector/dealer also conducts business in any other type of secondhand goods, the collector/dealer will be subject to the record keeping, licensing and goods retention requirements established in Article I of this chapter, regarding these other secondhand goods.

(Ord. No. 18391, § 1, 7-28-2015)

5.12.190 Registration.

Coin collectors and coin dealers that are not subject to the recordkeeping, licensing requirements and goods retention provisions of Article I of this chapter as they relate to their coin dealings, must meet the following registration conditions as they relate to their coin business:

A. All coin dealers and/or collectors who conduct a coin business and do not conduct any other secondhand goods business must register with the license official;

B. All coin conventions or other sales events must register with the license official no later than three business days before the scheduled date of the sales event. The sponsor(s) of such a sales event must submit the following information at the time of registration:

1. The type of sales event to be conducted;
2. The location of the sales event; and
3. The time and date of the sales event and its expected duration.

(Ord. No. 18391, § 1, 7-28-2015)

Article IV. Pawnbrokers

5.12.200 Pawnbrokers licensed by the state.

Pawnbrokers will continue to be licensed by the state and must follow the Texas Finance Code, Chapter 371, Title 7, Texas Administrative Code, Chapter 85, and other applicable state or federal law. In addition to the required state license, pawnbrokers must comply with the city's recordkeeping requirements as set forth in this article.
(Ord. No. 18391, § 1, 7-28-2015)

5.12.210 Recordkeeping.

Every pawnbroker must keep at his place of business the following records:

A. A record of the transaction in accordance with Section 5.12.110.

B. As applicable:

1. A copy of the pawn ticket; or
2. A copy of the bill of sale.

(Ord. No. 18391, § 1, 7-28-2015)

Article V. Violations—Penalty—Enforcement

5.12.220 Violations; penalty.

A. It is an offense for any person, firm, corporation, partner, officer or other entity representative, manager, operator or agent to violate a provision of this chapter

B. A secondhand dealer, whose employee or agent violates a provision of this chapter, concurrently violates the same provision and is subject to the same penalty as the employee or agent.

C. An offense under this chapter is a misdemeanor punishable by a fine not to exceed two thousand dollars.

D. The penalty provided for in this section is in addition to any other remedies that the city may have under other city ordinances and/or state law.
(Ord. No. 18391, § 1, 7-28-2015)

5.12.230 Enforcement.

The following city officials are authorized to enforce the provisions of this chapter and have the power to issue misdemeanor citations to any person who violates the provisions of this chapter: the city chief of police and/or his/her designee(s).
(Ord. No. 18391, § 1, 7-28-2015)

Chapter 5.13

SECURITY ALARM SYSTEMS

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5.13.010 Definitions.

For the purposes of this chapter:

A. "Alarm system" means any device or system used to detect or prevent burglary, theft, shoplifting, pilferage or other such emergency situations which when activated causes notification to be made directly or indirectly to the police department. The term includes an alarm or system that transmits a signal intended to summon the police department or is connected to an alarm system business and includes a local alarm system or an alarm that emits an audible or visual signal on the exterior of a structure. For purposes of this chapter, an alarm system shall not include:

1. An alarm installed on a vehicle, unless the vehicle is used for a habitation at a permanent site;

2. An alarm device designed solely to detect or give notice of fire or smoke; or

3. An alarm installed upon premises occupied by the United States government, the state, the city, the county or by any government entity, situated within the corporate limits of the city.

B. "Alarm site" means a single premises or location served by an alarm system or systems that are under the control of one person.

C. "Alarm system business" means any person, partnership, corporation or other legal entity which installs, services, monitors or responds to alarm systems for compensation as defined by the Texas Occupations Code.

D. "Applicant" means the person or entity who submits an application to obtain a permit and shall become the permit holder.

E. "Automatic dialing device" means any device connected to an alarm system which automatically sends a prerecorded message or coded signal indicating the activation of the alarm system directly to the police department.

F. "Conversion" means the transaction or process by which one alarm business begins servicing or monitoring of an alarm system installed by another alarm business or an alarm system which was previously serviced or monitored by another alarm business.

G. "Duress alarm" shall mean the deliberate activation of a silent alarm by entering at a keypad a code that is different from the normal arm/disarm code or by a separate deliberate act at another device.

H. "False alarm" means an alarm signal activated by an alarm system, eliciting a response by the police department within thirty minutes of the receipt of the alarm notification by the police

department when, after inspection of the interior or exterior of the premises by a responding officer, there is no evidence, or available evidence, of an emergency or threat of emergency of the type for which the alarm system was designed to give notice. Factors to be considered by a responding officer as to whether the alarm signal was false or not include but are not limited to: whether it was caused by violent conditions of nature or an act of God; whether other extraordinary circumstances existed to cause the alarm to signal; or whether a person or persons lawfully on or at the premises acted or failed to act in any manner which results in the inability of the responding officer to gather evidence or make any inspection, determination, or report as set forth in this chapter.

I. "Holdup alarm" shall mean the deliberate activation of an alarm giving notification of a robbery, attempted robbery or summons police aid for any other perceived life-threatening reasons.

J. "Interconnect" means the connecting of an alarm system, including an automatic dialing device, to a telephone line, either directly or through a mechanical device that utilizes a telephone, for the purpose of using the telephone line to transmit a message upon the activation of the alarm system.

K. "Local alarm system" means any alarm system, which is not monitored, that annunciates an alarm by an internal or external audio or visible device at an alarm site.

L. "Panic alarm" shall mean an audible alarm signal generated by the manual activation of a device intended to signal a life threatening or emergency situation requiring law enforcement response.

M. "Person" means any individual, partnership, corporation or other legal entity.

N. "Police chief" shall mean the chief of police.

O. "Relaying intermediary" means that portion of an alarm system business which receives or intercepts a signal or signals, indicating the activation of an alarm system and which relays this information to the police department.

P. "Verify" means an attempt by the alarm business, or its representative, to contact the alarm site by telephonic or other electronic means before requesting a police dispatch whether or not actual contact with a person is made, in an attempt to avoid an unnecessary alarm dispatch.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.13.020 Permit—Required.

A. It shall be a violation for a person to operate, or cause to be operated, an alarm system until the established fee for either a residential or commercial alarm system has been paid and a permit has been issued by the city for such system.

B. The police chief shall require that a valid permit be issued for an alarm site before a police officer or other law enforcement official responds, unless the alarm notification is: A duress alarm; a holdup alarm; a panic alarm; or reported to the 911 emergency telephone number or to the police department by any person with specific information indicating that there is possible criminal activity taking place at the alarm site.

C. Any person who previously held a registration for an alarm system under the code, as it existed prior to April 1, 1993, must comply with all provisions of this chapter and apply to obtain a permit.

D. Any outstanding fees or complaints as set forth in Section 5.13.070 must be resolved prior to the issuance of a permit.

E. Persons applying for a permit for an alarm system owned or operated by the city shall not be required to pay the permit fee

F. The permit holder for an alarm system shall keep such permit displayed at the property or location where such alarm system is installed and shall produce such permit for inspection upon the request of any member of the police department or the permit official. A permit holder who has been issued a decal by the city shall clearly write their permit number on the decal and shall con-

spicuously display the decal with the permit number so that the decal is visible from the front of the building or structure. A permit holder who operates an alarm system in a business shall conspicuously display the permit issued by the city at or near the location of the alarm control panel.

G. All alarm system businesses shall notify new alarm system customers including customers acquired by a conversion of the alarm system of the existence and provisions of this chapter prior to the installation or conversion of the alarm system. Within thirty days after the installation of a new alarm system, or the performance of an alarm system conversion, all alarm system businesses shall provide notice of the installation or the conversion to the permit official on forms provided by the city.

H. An alarm system business shall not install, activate and/or monitor any alarm system unless a valid alarm permit has been issued by the City of El Paso for an alarm site.

I. The issuance of a permit authorizing the use of an alarm system is not intended to nor shall it create a contract, either express or implied, creating a duty or guarantee of response. Any and all liability and consequential damages resulting from the failure to respond to a notification is hereby disclaimed and the city retains immunity from liability and suit based on a decision by the police department not to respond to an activation of a permitted or unpermitted alarm system.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.13.025 Alarm systems in multiple unit developments and unsold or unleased homes or businesses.

A. Each tenant, owner, or occupant of a multiple unit development, including but not limited to an apartment complex, multiple condominium units managed by another, duplexes, shopping mall or strip, or other similar developments, shall obtain a separate alarm permit from the city for an alarm system that is operated in their unit, whether the alarm system is furnished by themselves; the system is furnished by the owner, manager, or landlord of the unit as an amenity; the system is a multiple location system that is partitioned among several locations that separately or individually have access to use the system within one location or unit; or the system is contracted for by an individual tenant, owner or occupant.

B. If the owner, manager, or landlord contracts with an alarm system business for the installation or operation of the alarm system on behalf of the tenant, owner, or occupant of the unit, the owner, manager, or landlord shall notify the tenant, owner, or occupant of the unit of the existence and provisions of this chapter prior to such time that the tenant, owner or occupant of the unit begins operation of the alarm system.

C. Each owner, manager, or landlord of a multiple unit development must obtain a separate permit to operate an alarm system in any unleased or unsold unit or in any common areas of the development, including but not limited to, common tenant areas, offices, storage areas, and equipment areas.

D. The owner, builder, or developer of an unsold or unleased home or business, including but not limited to newly constructed homes or businesses, must obtain a separate permit for each such home or business to operate an alarm system on the premises.

E. For purposes of assessing civil penalties and enforcing this chapter, the person in an occupied, leased, or purchased unit is responsible for compliance with this chapter and for payment of civil penalties for excess false alarm notifications emitted from an alarm system in their unit and the owner, manager, or landlord is responsible for compliance with this chapter and for payment of civil penalties for excess false alarm notifications emitted from an alarm system in unleased or unsold units and in any common areas. The owner, builder, or developer of an unsold or unleased home or business is responsible for compliance with this chapter and for payment of civil penalties for excess false alarm notifications emitted from an alarm system on the premises.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.13.030 Application.

The application for the permit required by this chapter shall be made in writing to the permit official. The application may be made by the applicant or by any other person, including an alarm system business, with authorization from the applicant. Such application shall be made on a form designated by the city for that purpose and shall set forth:

A. The name, address and telephone number of the applicant;

B. If the applicant is a legal entity, the names and addresses of the corporate officers, partners or other persons legally responsible for the entity and the applicant must provide written authorization from the entity permitting the individual to sign and submit the application on behalf of the entity;

C. The name, address and telephone number of the persons in operational control of the property, if other than the applicant or if the applicant is a legal entity;

D. The street address of the property on which the alarm system is to be installed and operated;

E. Any business name used for the premises on which the alarm system is to be installed and operated;

F. The name, address and telephone number of the alarm system business, if any, that installed, services or monitors the alarm system or responds to the alarm system and the name, make, model or series number of the alarm system;

G. 1. The names and telephone numbers of two persons, one of whom does not reside at the address of the permit location, or of an alarm business, which are able to and have agreed:

a. To receive notification at any time;

b. To come to the alarm site within one hour after receiving a request from a member of the police department to do so; and

c. To grant access to the alarm site and to deactivate the alarm system if such becomes necessary;

2. Whenever a permit holder, person, or alarm system business listed in this section is unwilling or unable to perform the duties set out, the permit holder shall immediately amend such application setting forth the names and telephone numbers of two persons or an alarm system business willing to perform the duties as listed in this section. Amendments shall be made in person to the permit official or by sending written notice to the permit official.

3. The failure of a permit holder, person, or alarm company to respond under subsection G.1. of this section or noncompliance with subsection G.2. of this section may be cause for the revocation of the permit under this chapter, in addition to any penalties provided under this chapter;

H. The permit holder must notify the permit official in writing of any change of the information required in the application for registration within twenty days of such change. A person who continues to operate an alarm system without providing changes to the information required under this sub-section commits an offense;

I. No permit shall be issued to any applicant who fails to furnish the information required by this section.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.13.040 Permit term.

Permits issued pursuant to this chapter shall expire three years from the date of issuance, unless otherwise established, suspended or revoked. A permit may be issued for a one year period in cases of economic need or hardship at one-third the established three year fee.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012; Ord. No. 17779, § 1, 5-1-2012)

Editor's note—Section 3 of Ord. No. 17779, adopted May 1, 2012 states the effective date of this ordinance shall be the date signed by the Mayor for the City of El Paso. This ordinance shall be applicable to all permit applications received on or after that date.

5.13.050 Permit renewal.

If, thirty days prior to the expiration of the permit, there are no outstanding violations, citations or fees owed to the city by the permit holder which are directly related to the permit, the permit may be renewed for a period of three years, or as

provided in Section 5.13.040, upon the filing of a new application and payment of the established fee.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012; Ord. No. 17779, § 1, 5-1-2012)

Editor's note—Section 3 of Ord. No. 17779, adopted May 1, 2012 states the effective date of this ordinance shall be the date signed by the Mayor for the City of El Paso. This ordinance shall be applicable to all permit applications received on or after that date.

5.13.060 Alarm user awareness class.

The police chief may create and implement an alarm user awareness class that may be attended by alarm users. The class shall inform alarm users of the problems created by false alarms and teach alarm users how to avoid generating false alarms.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.13.070 False alarm penalties.

Alarm systems owned or operated by the city shall not be assessed penalties for false alarms. All other permit holders or any other persons in control of an alarm system shall pay a false alarm civil penalty in accordance with Section 214.197, Local Government Code or its successor, for the signaling of a false alarm if at least three other false alarms have occurred during the preceding twelve-month period. The amount of the penalty for the signaling of a false alarm shall be fifty dollars if the location has had more than three but fewer than six other false alarms in the preceding twelve-month period; seventy-five dollars, if the location has had more than five but fewer than eight other false alarms in the preceding twelve-month period; or one hundred dollars, if the location has had eight or more other false alarms in the preceding twelve-month period. The police chief shall notify the permit holder or other person in control of the alarm system that the alarm site has exceeded three false alarm notifications in the preceding twelve-month period. The notice shall be made in writing and shall contain a statement that the permit holder may, at his or her election, attend an alarm user awareness class as set forth in Section 5.13.060 of this chapter. If the permit holder completes the alarm user awareness class within thirty days of the date of the notice or completes the next available alarm user awareness class, whichever occurs first, no penalty shall be accessed. Otherwise, the permit holder or other person in control of the alarm system shall pay the assessed penalty.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.13.080 Automatic dialing devices—Prohibited.

It is unlawful for any person to program an automatic dialing device to select any telephone line into the police department.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.13.090 Direct alarm reporting—Automatic alarm notification prohibited.

An alarm system, other than an alarm system in a financial institution, which transmits automatic alarm notifications directly to the communications center of the police department or the 911 District shall be prohibited.

A. A financial institution required to have an alarm system pursuant to the provisions of the Bank Protection Act of 1968 (12 U.S.C., Section 1882) may install, with the permission of the chief of police and the 911 District, a signal line directly to the police department or the 911 District for the purpose of reporting burglaries and robberies.

B. The financial institution shall pay the established annual fee for each indicator. The police chief shall have the right, at reasonable times and upon oral notice, to inspect the alarm system at the alarm site and require necessary repairs or improvements. If the police chief finds that the alarm system continually fails to operate or be operated to his satisfaction, he may terminate the privilege to have equipment and indicators in the communications center of the police department or the 911 District and require prompt removal of same at the expense of the financial institution.

C. The financial institution, at its expense, shall make arrangements to provide service for the alarm system at the instance of the financial institution or the chief of police on a twenty-four-hour

basis, seven days a week. In no event shall the city become liable for service charges for repairs and maintenance of any such signaling device.

D. The financial institution may cancel its agreement with the city at any time by giving the city written notice through the chief of police, whereupon such institution, at its expense shall have its equipment and indicators promptly removed from the monitor panel in the communications center or the 911 District.

E. The police chief has the right to require any change, modernization or consolidation of alarm signaling equipment that he deems advisable. In no event shall the city become liable for charges for such changes.

F. Instead of a direct line, a financial institution may instead choose to report burglaries and robberies by transmission through an alarm reporting service using a telephone number designated by the chief of police.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.13.100 Revocation—Procedure.

A. The police chief may revoke an alarm permit or registration if it is determined that:

1. There is a false statement of a material matter in the application for a permit or registration;

2. The permit or registration holder has violated any part of this chapter or has failed to comply with or maintain any and all of the requirements applicable to the issuance of the permit as set forth in Section 5.13.030 of this chapter;

3. The permit or registration holder, or any other person in control of an alarm system has failed to pay a civil penalty assessed under Section 5.13.070 of this chapter within ninety days after a bill for the assessment was issued;

4. Eight or more false alarm notifications have been emitted from the alarm site during the preceding twelve-month period;

5. Five or more false alarm notifications have been emitted from the alarm site during the preceding twelve-month period which were emitted because of mechanical malfunction or faulty equipment; or

6. The person operating the permit holds a registration issued under provisions of the prior city code and has not applied to obtain a new permit as required under this chapter.

B. Prior to taking action to revoke a permit, the police chief shall mail written notice of the grounds of such revocation to the permit holder. The permit holder may appeal the revocation of the permit pursuant to Section 5.01.090 of this Code.

C. A permit or registration holder or other person commits an offense if he operates an alarm system during the period in which the alarm permit or registration is revoked.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.13.110 Revocation—Discontinuation of service.

In the event that the police chief revokes an alarm permit in accordance with the provisions of this chapter for the reason stated in Section 5.13.100 A.5. of the city code, the police chief may further order the alarm system business to discontinue the service from such alarm system for such time as the permit for such system remains revoked. Notice of an order under this section shall be sent to the alarm system business by certified mail. The alarm system business shall comply with the order and discontinue alarm service within twenty-four hours after receipt of the notice.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.13.120 Appeal from assessment of civil penalty.

A. A permit holder or other person assessed a civil penalty may appeal the assessment of a civil penalty by requesting a hearing to be held before a municipal associate judge in municipal court.

B. The request for an appeal must be made in writing and delivered to the clerk of the municipal court not more than ten days after the bill for the

assessment of the civil penalty is issued. A copy of the written appeal shall be sent by the appealing party to the police chief.

C. A municipal associate judge shall, as soon as practicable, hear such appeal, after reasonable notice to the appealing party and to the police chief.

D. The appealing party and the police chief shall have opportunities to present evidence and make argument on their behalf. The formal rules of evidence do not apply to an appeal under this section.

E. A municipal associate judge shall make his ruling on the basis of substantial evidence presented at the hearing. A municipal associate judge shall affirm, reverse or modify the assessment of the civil penalty, except, that a municipal associate judge may not reduce or increase the amount designated in Section 5.13.070 for a civil penalty that is assessed for a false alarm notification determined by a municipal associate judge to have occurred. The decision of a municipal associate judge is final.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012; Ord. No. 019641, § 1, 6-11-2024)

5.13.130 Reinstatement of permit.

Except as provided in subsection B. of this section:

A. A permit holder or other person whose alarm permit or registration has been revoked may be issued a new permit provided that all outstanding civil penalties assessed under this chapter for which a bill has been issued have been paid and the person:

1. Meets the qualifications of an applicant;

2. Submits an updated application and pays the established permit fee; and

3. Pays, or otherwise resolves, all complaints in municipal court issued to the person under this chapter.

B. The reinstatement of a permit may be refused if the police chief determines that the system proposed to be used or persons responsible for the alarm system under the reinstated permit have a history of unreliability. Factors to be used in determining a history of unreliability shall include:

1. Ten or more false alarm notifications in the thirty-day period prior to the revocation of the permit; or

2. Two or more incidents of failure of the permit holder or alarm service business to respond to false alarm notifications by the police department in the thirty-day period prior to the revocation of the permit; or

3. Two or more incidents of continuing alarm system operation during the period in which the permit was revoked; or

4. Failure to provide proof that an alarm system business has properly serviced the system and corrected any deficiencies.

C. An appeal of the decision of the police chief to refuse to reinstate a permit under subsection B. of this section may be made to a municipal associate judge in the same manner as an appeal from the assessment of a civil penalty in Section 5.13.120. A municipal associate judge shall affirm or reverse the decision of the police chief. The decision of a municipal associate judge is final.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012; Ord. No. 019641, § 2, 6-11-2024)

5.13.140 Proper alarm system operation and maintenance

A. A permit holder or other person in control of an alarm system or premises in which an alarm system is operated:

1. Shall maintain premises containing an alarm system in a manner that insures proper operation of the alarm system;

2. Shall maintain the alarm system in a manner that will minimize false alarm notifications;

3. Shall not manually activate an alarm for any reason other than for an occurrence of an event as set forth in Section 5.13.010 A. of this chapter.

B. A permit holder or person in control of an alarm system shall adjust the mechanism or cause the mechanism to be adjusted so that an alarm

audible on the exterior of the alarm site will be actuated for no longer than ten minutes after being activated. It shall be a violation for an alarm signal to sound at an alarm site continuously for more than fifteen minutes.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.13.150 Manual reset required.

A. A permit holder or person in control of an alarm system which utilizes equipment that is capable of being adjusted so that the mechanism, upon activation, will not make or transmit another alarm signal from the alarm or a separate zone therein without first being manually reset, shall adjust or cause the system to be adjusted so that it will not make or transmit another alarm signal from the alarm or a separate zone therein that triggered a false alarm without first being manually reset.

B. No person, on or after July 1, 1996, shall install on premises located in the city an alarm system or replacement equipment which controls the system for an existing alarm system that does not utilize equipment that is capable of being adjusted so that the mechanism, upon activation, will not make or transmit another alarm signal from the alarm or a separate zone therein without first being manually reset.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.13.160 Reporting of alarm signals.

A. A permit holder or person in control of an alarm system shall not allow alarm signals to be reported through a relaying intermediary that does not comply with the requirements of this chapter or that is not licensed by the Texas Board of Private Investigators and Private Security Agencies, as may be required.

B. Before requesting a police response to an alarm signal, an alarm business must attempt to verify every alarm signal except for an alarm signal authorized under Section 5.13.090 of this chapter, an alarm signal emitted from a certified UL system, or an alarm signal emitted from an alarm system owned or operated by the city. If there is no response or confirmation in the initial verification attempt, an alarm business or its representative, shall make a second verification attempt to the alarm site and/or alarm user to determine whether an alarm signal is valid before requesting law enforcement dispatch.

C. An alarm notification may be canceled by the alarm system business by notice to the police department within four minutes of the alarm notification or prior to the arrival of a police officer at the scene of the alarm site, whichever occurs first, and the police department shall accept such cancellation of an alarm notification and a false alarm will be avoided.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.13.170 Alarm dispatch records.

A. The police department and the officer responding to a dispatch resulting from an alarm notification shall record or cause to be recorded such information as necessary to permit the police chief to maintain records, including but not limited to the following information:

1. Identification of the alarm site;
2. Date, dispatch received time and arrival time;
3. Weather conditions;
4. Name of permit holder's representative on premises, if any.

B. The responding officer shall indicate or cause to be indicated on a record the presence or absence of factors indicating whether the notification was caused by a criminal offense.

C. A copy of the record, as recorded at the alarm site by the responding officer, shall be left at the alarm site whenever possible. Otherwise, all records relating to the response shall be available upon written request, as permitted under the Texas Public Information Act, through the police department identification and records section.

D. In the event that a person or persons lawfully on the premises act or fail to act in any manner which results in the inability of the responding officer to make any inspection, determination, or report as set forth in this chapter, the

officer shall make a determination that the alarm was false and shall note such determination on a record. In such an event, the officer shall not be required to leave a copy of the record at the alarm site.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.13.180 Penalties.

A. Any permit holder or other person who violates any provision of this chapter shall be deemed guilty of a misdemeanor, and upon conviction thereof, shall be punished as provided in Chapter 1.08 of this Code by a fine not to exceed five hundred dollars. Each day the violation occurs shall constitute a separate offense.

B. Each permit holder and each person having control over property on which an alarm system is installed has an affirmative duty to comply with all provisions of this chapter, and it shall not be a defense to prosecution of such a person that he was acting without a culpable mental state.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.13.190 Severability.

That the terms and provisions of the ordinances codified in this chapter are severable. If any provision, including inter alia any exception, defense, subsection, part, phrase, term, or word, or the application thereof to any person or circumstance is held invalid or unconstitutional by valid judgment or decree of a court of competent jurisdiction, such holding shall not affect the validity of the remaining portions of this chapter and such remaining portions shall remain in full force and effect.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

Chapter 5.14

SIGN CONTRACTOR LICENSE

Sections:

5.14.010 Sign contractor license.

5.14.010 Sign contractor license.

A. Licenses.

1. License required.

a. Except as provided herein, no person shall engage in the business of erecting, installing, servicing or maintaining signs for sale, rental or leasing purposes, and no permit shall be issued for the erection, construction or demolition of a sign, until such person shall have paid the established fee for that particular sign classification and received from the permit official a license to conduct such work.

2. Exemptions. Compliance with this section shall not be required in the following instances:

a. If the type of sign installed is exempt from the applicable provisions of Title 20 (Zoning) and does not require a permit prior to installation;

b. Electrical sign contractor licensed by the state and the sign installed requires electricity as a source of energy or in the operation of the sign; provided, that all electrical work shall be in compliance with Title 18 (Building and Construction) of the El Paso City Code. A copy of the state license shall be provided to the city.

3. Term. All license issued pursuant to this chapter shall continue in full force for one year from the date of issuance, and may be renewed annually thereafter upon payment of the established renewal fee unless the license has been suspended or revoked.

4. Renewal date. A person licensed under this chapter must renew his license within thirty days prior to the expiration of their license or the license shall automatically expire and a new license shall be required prior to completing any work to which this chapter is applicable.

5. License fees. There shall also be established fees for businesses engaged in painting signs and for the issuance of a duplicate license for one lost, destroyed or mutilated.

6. License numbers. Each recipient of a license shall have painted, or placed, using a permanent type decal, within forty-eight hours after receipt of the license, the license number in a prominent position on all company vehicles used on job sites, as well as on all signs installed, erected or serviced by the licensee.

7. Suspension or revocation of license.

a. The permit official may suspend or revoke the license and permit privileges of a person, or request the suspension of a state licensed electrical sign contractor after determining that the person is guilty of:

i. Fraud or deceit in obtaining a license under this chapter;

ii. Allowing a person other than the licensee who obtained the sign permit, or an employee acting under the direct supervision of that person, to perform work for which that permit is required;

iii. Gross negligence, incompetency, or misconduct in the performance of sign work;

iv. Intentionally making a false or misleading material statement on the application for a sign installation permit, sign license application or to support the zoning administrator's determination that a particular sign is a nonconforming sign;

v. Installing, moving, or structurally altering or repairing a sign in violation of this chapter; or

vi. Failing to maintain the insurance required by this chapter.

b. A licensee may appeal the permit official's decision to revoke or suspend the licensee's license to the city manager pursuant to Section 5.01.090 of this Code.

c. A person whose license is revoked may not apply for a license for a period of one year after the revocation.

d. Operating while suspended or revoked. It is unlawful for any person whose license has been suspended or revoked by the permit official to

engage in, construct, install or otherwise attempt any work regarding signs for which a permit is required under Title 20 (Zoning) of this Code.

8. Insurance and indemnification requirements.

a. Prior to the issuance of a license all persons applying for a license shall agree to indemnify and hold harmless the city, its members, agents, officers and employees, their successors and assigns, individually or collectively, from and against all liability for any fines, claims, suits, demands, action or causes of action of any kind and nature including, but not limited to, personal injury or death, and property damage, in any way arising out of or resulting from any activity or operation of the licensee. The licensee shall pay all expenses incurred in defending against any such claims made against the city; however, the license holder shall not be liable for any injury, damage, or loss caused by the sole negligence or willful misconduct of the city, its agents or employees. The licensee and the city shall give prompt and timely notice of any claim made, or suit initiated which in any way affects or might affect either party.

b. The licensee shall procure and maintain at his own expense, the following types and amounts of insurance:

Minimum limits of liability and coverage shall be the required statutory amount for worker's compensation; two hundred fifty thousand dollars for bodily injury liability, including death, for each person; and five hundred thousand dollars in the aggregate; and one hundred thousand dollars for property damage for each occurrence; and one hundred thousand dollars in the aggregate. Permit and license applicants that are governmental entities may comply with the insurance requirements of this section by providing certification that they are self-insured.

c. In addition, the insurance policy shall state that the city shall:

i. Be named as additional insured/or insured, as its interest may appear;

ii. Be provided with a waiver of subrogation;

iii. Be provided with thirty days advance notice, in writing, of cancellation or material change;

iv. Be provided with certificates of insurance evidencing the required insurance types and amounts, prior to the commencement of the city's fiscal year. Notices and certificates of insurance shall be provided to the permit official.

d. Should a person holding a license sever employment connections with a firm which is jointly covered by the same insurance, a new certificate showing proper coverage will be required of both parties prior to either party receiving a new or renewal license.

e. If the insurance is canceled or renewed at periods other than the annual license renewal date, new evidence to show that the licensee is maintaining proper coverage shall be furnished to the city.

9. Bond required.

a. No person shall erect, install or maintain any sign within the city, for which a permit is required, until such person has filed with the building official a bond in the sum of twenty five thousand dollars. The licensee shall provide the bond annually to the city no later than thirty days prior to the expiration of the bond currently in force. Such bond shall ensure the full and faithful compliance by the licensee of all the covenants, terms, and conditions of the construction codes of the city and the laws of the state; and provide for the indemnification of the city for any and all damages or liabilities that may accrue to or against the city by reason of erection, maintenance, demolition, repair, removal or defects in or collapse of any sign erected by or under the direction of such person; and further provide for the indemnification of any person who shall, upon public property of the city, incur damages for which the person erecting such sign is liable by reason of the erection, maintenance, demolition, repair, removal or defects in or collapse of any such sign. Persons, who erect, install or maintain and small businesses engaged only in sign painting shall be exempt from bonding provisions.

b. Bond recovery and disposition. The building official shall report each violation of this chap-

ter to the city attorney who shall immediately make demand on the compliance bond holder and his sureties for the amount of liability for each offense. Should the compliance bond holder default, the city attorney may file suit upon the bond or seek any other lawful remedy for recovery of any amount due the city.

10. Enforcement—Penalty.

a. Civil and criminal penalties. The city manager and designees, including but not limited to the code enforcement division shall have the power to administer and enforce the provisions of this chapter as may be required by governing law. Any person violating any provision of this ordinance is subject to suit for injunctive relief as well as prosecution for criminal violations. Any violation of this chapter is declared to be a nuisance.

b. Criminal prosecution. Any person violating any provision of this chapter shall, upon conviction, be fined a sum not exceeding two thousand dollars. Each day that a provision of this chapter is violated shall constitute a separate offense.

c. Civil remedies. Nothing in this chapter shall be construed as a waiver of the city's right to bring a civil action to enforce the provisions of this chapter and to seek remedies as allowed by law, including, but not limited to the following:

i. Injunctive relief to prevent specific conduct that violates the ordinance or to require specific conduct that is necessary for compliance with the ordinance;

ii. A civil penalty up to five hundred dollars a day when it is shown that the defendant was notified of the provisions of the ordinance and after receiving notice committed acts in violation of the ordinance or failed to take action necessary for compliance with the ordinance; and

iii. Any other remedy available by law.

11. Severability. If any section, subsection, sentence, clause or phrase of this chapter is for any reason held to be unconstitutional, such decision shall not affect the validity of the remaining portions of this chapter.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

Chapter 5.15

VENDORS AND SOLICITORS

Sections:

5.15.010 Definitions.

5.15.020 License—Required.

5.15.030 License—Application—Revocation for failure to make required reports.

5.15.040 License fees.

5.15.050 License—Issuance—Contents—Display—Nontransferable.

5.15.060 License—Term.

5.15.070 License—Temporary—Fee—Term.

5.15.080 Inspection, condemnation and confiscation of merchandise—Revocation of license.

5.15.090 Exemptions.

5.15.095 Where vending or soliciting may be conducted within the city.

5.15.100 Violation—Penalty.

5.15.010 Definitions.

The following definitions apply to this chapter:

A. "Itinerant" means nonresident, and applies to any person engaging in the business of being a vendor or solicitor as herein defined, who does not reside in the City of El Paso.

B. "Merchandise" is to be construed broadly and includes but is not limited to any and all articles or objects of trade or commerce, goods, commodities, products, wares, money or any personal property to be sold, exhibited or offered for sale.

C. "Reside" means having dwelled continually within the City of El Paso for at least the thirty consecutive days immediately preceding the date of application for a license, or having owned, rented or leased a dwelling within the city during that period of time.

D. "Solicitor" means any person who shall solicit or accept orders for or subscriptions to any book, magazine or periodical, or for any merchandise when delivery is to be made in the future.

E. "Temporary" means any act of vending or soliciting transacted or conducted in the city upon premises for which definite arrangements have not been made in writing for the hire, rental or lease of such premises for at least three months for the purpose of transacting or conducting such business of vending or soliciting.

F. "Vendor" means any person who engages in a temporary business in the city of selling, exhibiting or offering for sale any merchandise, including:

1. Any person who engages in such business upon or from a truck or other vehicle within the limits of the city; or

2. Any person who hires, rents, leases or occupies any room or space in any building, structure, enclosure, vacant lot or any other property whatsoever in the city, in, through or from which any merchandise may be sold, offered or exhibited for sale; or

3. Any person who carries any merchandise with him, whether such merchandise is carried on foot or motor vehicle, or other conveyance whatsoever, from place to place, or from house to house, within the city, exhibiting or offering his own or his principal's merchandise for sale, and who then and there sells and delivers it to other persons or dealers;

4. Any person who engages in the business of buying, selling or exchanging money for profit.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.15.020 License—Required.

No person shall engage in, transact or conduct the business or occupation of a vendor or solicitor, as herein defined, either as principal or as agent, servant or employee of any other person, without first having obtained a license therefor, unless such person is exempt, under the provisions of this chapter, from having to obtain such a license.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.15.030 License—Application—Revocation for failure to make required reports.

A. As a prerequisite to obtaining the license herein required, every person engaging in the business of vendor or solicitor shall make application upon a blank or form to be furnished by the permit official, wherein the applicant shall give the following information:

1. Name, residence and business addresses, and length of occupancy of each;

2. Character or merchandise to be offered for sale;

3. Applicant's last business occupation, last place of residence, and license number and place of issuance or license of motor vehicle, if any, used in applicant's business;

4. Acceptable personal identification, such as a driver's license, birth certificate or passport;

5. Proof that the applicant has received or has applied for a Texas limited sales and use tax permit;

6. Any other pertinent information deemed necessary by the permit official.

B. With respect to itinerant vendors and itinerant solicitors, the permit official shall refer the application to the chief of police. The chief of police may require any such applicant to be fingerprinted and to make periodic reports of his whereabouts and activities to the extent the chief of police deems it necessary to protect the public from any abuse of the privileges granted under this ordinance. After conducting a hearing, the chief of police may revoke the license of any person who fails to make reports as required by the chief of police under this provision.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.15.040 License fees.

Every person, before engaging in the business of vending or soliciting in the city, shall pay, in advance, to the permit official, an annual city license fee as follows:

A. For every itinerant vendor or itinerant solicitor, one hundred dollars per year;

B. For every vendor or solicitor who uses any private motor vehicle as a means of conveyance for his merchandise or as a means of transportation for the purpose of engaging in business, seventy dollars per year;

C. For every person who engages in the business of buying, selling or exchanging money for profit, one hundred seventy dollars per year;

D. For every other person, forty dollars per year.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.15.050 License—Issuance—Contents—Display—Nontransferable.

Upon payment of the license fee as herein provided, the permit official shall issue and deliver to such vendor or solicitor a license which shall show the date of issuance, the name, occupation, place of residence of licensee and fee paid therefore, and the licensee shall carry his license with him and shall exhibit the same whenever requested by any inspector, police officer or other officer authorized by law to make inspections and arrests under this chapter. No license issued hereunder shall be transferable.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.15.060 License—Term.

Licenses issued under this chapter shall expire one year from the date of issuance.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.15.070 License—Temporary—Fee—Term.

A. A temporary license or receipt may be issued to any itinerant vendor or solicitor who engages in the business of a vendor or solicitor, as herein defined, within the city, during a time when he would be unable to apply for a Texas limited sales and use tax permit as required by Section 5.15.030 A.5.

1. Such a temporary license or receipt shall be valid for not more than two consecutive days;

2. The fee for a temporary license as herein provided shall be twenty dollars;

3. An itinerant vendor shall be eligible for a temporary license under this section only once without obtaining the Texas limited sales and use tax permit.

B. All other licensing provisions found in this chapter shall remain in full force and effect and apply equally to those doing business with a temporary license or receipt.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.15.080 Inspection, condemnation and confiscation of merchandise—Revocation of license.

It shall be the duty of the permit official, code enforcement division, or of the peace officers of the city, to inspect merchandise offered for sale in the city by a vendor or solicitor, and such officials, inspectors and peace officers shall have the power to condemn and confiscate any merchandise which they deem to be unsafe or otherwise unfit for sale to the public, or which they deem to be misrepresented as to grade, quality or condition. Such condemnation shall remain in effect as long as necessary to protect the public from the danger which is being prevented by the condemnation. After conducting a hearing, the chief of police may revoke the license of any person who shall offer for sale merchandise which is unsafe or unfit for sale to the public, or who shall intentionally misrepresent the quality, grade or conditions of any merchandise offered for sale.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.15.090 Exemptions.

This chapter shall not apply to:

A. Any person (to include, but not limited to, farmers, vendors, peddlers, hucksters, whether on foot or from a vehicle) who distributes, transports or sells only foods or beverages, provided such person shall pay the license fee and comply with all applicable provisions set forth in Chapter 9.12 of this Code;

B. The distribution or sale of newspapers, pamphlets, handbills or other written or printed matter sold or distributed for the purpose of disseminating news, information or religious materials;

C. Any nonprofit or charitable organization; or any person participating in an exhibition or event sponsored by a nonprofit or charitable organization; provided, that the organization obtain the approval of the permit official;

D. Any person who will be participating as a vendor in an event that is permitted by a special privilege license and permit for street closures.

E. Any person who has obtained a home occupation license under the provision of Section 20.04.820 and any other applicable provision in Title 20 for home occupations, and who engages in the business of vending or soliciting solely on the premises for which the home occupation license was issued;

F. An ordinary commercial traveler who sells or exhibits for sale merchandise to parties engaged in the business of buying and selling and dealing in such merchandise;

G. Farmers or their employees who produce and sell farm products, poultry, stock or agricultural products in their natural state;

H. Anyone engaged wholly in interstate commerce, or anyone whose operations form an integral part of interstate commerce and upon whom the provisions of this chapter would impose a direct and unlawful burden with respect to such operations;

I. Any person residing in the city who does not regularly engage in the business of vending or soliciting and who, on five or less days during the course of any calendar year, transacts sales of used merchandise which had previously been obtained for domestic or personal use, provided that such person, upon the request of the permit official, shall sign a statement verifying that:

1. Such person is not in the business of vending or soliciting, and

2. Such person has not and will not transact sales under this section on more than five days during the course of the current calendar year;

J. Nothing contained in this Section 5.15.090 shall be construed to relieve any person of any City Charter or ordinance requirement, including but not limited to the requirements of Chapter 9.12 (Food and Food Handling Establishments), or Chapter 13.20 (Miscellaneous Street and Sidewalk Use Regulations).
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012; Ord. No. 17980, § 2, 4-2-2013)

5.15.095 Where vending or soliciting may be conducted within the city.

A. Vending or soliciting conducted within the city shall be on premises which are zoned for retail sales, including the renting, leasing or occupying of any room or space in any building, structure, enclosure, vacant lot or any other property in the city.

B. Any person engaging in the business of being a vendor or solicitor within the city shall not exhibit and offer his own or his principal's merchandise for sale in violation of Section 13.20.040 of the City Code.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.15.100 Violation—Penalty.

Any person violating any of the provisions of this chapter shall upon conviction be punished by a fine not to exceed two hundred dollars as provided in Sections 1.08.010 through 1.08.030, and each separate act of vending or soliciting shall be a separate offense.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

Chapter 5.16

DISTRIBUTION OF LITERATURE, SOLICITATION OF DONATIONS AND OTHER REGULATED ACTIVITIES AT THE EL PASO ZOO

Sections:

5.16.010 Purpose.

5.16.020 Definitions.

5.16.030 Conduct of regulated activities.

5.16.040 Permit requirement.

5.16.050 Issuance of permits.

5.16.060 Late applications.

5.16.070 Denial of permit.

5.16.080 Suspension or revocation.

5.16.090 Violation—Penalty.

5.16.010 Purpose.

It is the purpose of this title:

A. To assure the fair use of the public areas at the El Paso Zoo by persons seeking to exercise constitutional freedom of expression and for religious organizations to proselytize or solicit funds;

B. To permit equitable access among persons and groups desiring to exercise such constitutional freedoms;

C. To restrict such activities to public areas of the El Paso Zoo, which do not include areas within the zoo perimeter fence and wall;

D. To prevent interference with patrons and other users of the zoo; to allow full access to zoo facilities and free passage among those facilities and to ensure the free and orderly flow of pedestrian traffic into, throughout and out of the zoo premises;

E. To discourage interference with zoo patrons who are required to wait in lines.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.16.020 Definitions.

Notwithstanding anything to the contrary set forth elsewhere in this title, the following definitions shall apply for the purpose of this section:

A. "Director" means the Director of the El Paso Zoo or his designee.

B. "Permittee" means a person or organization conducting regulated activities pursuant to a permit duly issued under this chapter.

C. "Public areas" means those portions of the zoo outside the perimeter fence directly in front of the main zoo entrance which permits generally unrestricted access.

D. "Regulated activities" means those activities by persons or organizations desiring to exercise constitutionally protected rights of free speech and expression and freedom of religion, for which a permit is required under this chapter, namely:

1. Religious or other proselytism;
2. Solicitation and acceptance of donations;
3. Distribution of handbills, tracts and other literature.

E. "Zoo" means the area of the El Paso Zoo located at 4001 E. Paisano, El Paso, Texas.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.16.030 Conduct of regulated activities.

The conduct of regulated activities pursuant to this chapter will be permitted in the following manner in the public areas of the zoo:

A. No individual shall be approached by more than one distributor or solicitor at a time;

B. No distributor or solicitor shall make noise or create any disturbance which will interfere with the ability of the public to hear public address announcements nor shall any distributor or solicitor shout at any person. The use of sound or voice amplification apparatus is prohibited;

C. To ensure the efficient and orderly use of the zoo for its primary purpose and to assure equal opportunity for freedom of expression, not more than a total of two persons shall be permitted to engage in regulated activities in the zoo at the same time;

D. No regulated activity shall interfere with the free passage of the public into and out of the zoo;

E. No signs, placards or other materials shall be affixed to zoo buildings, fences or walls;

F. No leaflets or other written materials shall be distributed by leaving them unattended;

G. No person shall engage in regulated activities under this chapter except in one of the designated areas indicated on Exhibit A and no more than one person shall be in a designated area at any given time;

H. No person engaging in regulated activities under this chapter shall, by word or gesture or otherwise, harass or threaten any other persons or in any way obstruct, delay or interfere with the free movement of any other person or seek to coerce or physically disturb or touch any other person without that person's permission; or hamper or impede or interfere with the conduct of any authorized business at the zoo;

I. Engaging in regulated activities under this chapter in any location other than one assigned in a permit issued by the zoo director is prohibited. (Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.16.040 Permit requirement.

It is unlawful for any person or organization to engage in any regulated activities under this chapter without first obtaining a written permit from the director. For the purposes of obtaining such a permit a written application on a form prescribed by and provided by the city must be filed with the director. The filing of such application is required in order that adequate precautions may be taken by the director to protect the public health, safety and order and to ensure the efficient and orderly use of zoo property for its primary purpose and to ensure equal opportunity for freedom of expression. The application shall:

A. Contain the full name, mailing address and telephone number of the applicant;

B. If the applicant is an organization, contain the full name, mailing address and telephone number of a person acting for the organization and responsible for the proposed activities;

C. State the purpose or subject of the proposed activity;

D. Contain a description of the proposed activities and type of communication to be involved;

E. State the desired date or dates, hours and location of such activities. Requested locations shall be one of the locations indicated on Exhibit A attached to the ordinance codified in this chapter, and adopted by reference. Where more than one applicant requests the same location or locations the assigned location will be based upon the drawing of lots;

F. State the number of persons and their names who propose to participate in such activities during the permit period;

G. If the applicant is a person or organization which solicits or accepts alms or gifts by representing or claiming that any charitable, patriotic, fraternal or philanthropic organization is to receive a benefit therefrom, have attached a copy of the charitable solicitation permit under Chapter 5.03 of this Code or evidence that the person or organization is exempt therefrom;

H. State any additional information requested by the director and reasonably necessary for a fair determination as to whether a permit shall issue. (Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.16.050 Issuance of permits.

A. Applications for permits under this chapter must be submitted between the hours of 8:00 a.m. and 5:00 p.m., Tuesday through Thursday of each week at the zoo administration office, or at such other place designated by the director. A maximum of two permits will be issued for a total of two persons, inclusive of all permits. Where more than one applicant requests a permit, permits will be granted to insure that each applicant is authorized to have at least one person authorized to engage in regulated activities for the applicant, subject to the overall maximum of two persons during any permit period.

B. The number of persons authorized to engage in regulated activities under a permit will be allocated as follows:

1. One applicant, any number up to a maximum of four;

2. Two applicants, a maximum of two per permit;

3. More than two applicants, all applicants present at the time and place assigned for issuance

of permits will draw lots in a manner to be determined by the director. A permit will be issued to each of the two successful applicants authorizing one person per permit.

C. Permits will be issued every Monday at 10:00 a.m. in the zoo administration office, or at such other place designated by the director. An applicant or its representative must be present to receive a permit. Permits issued will be valid for a one-week period beginning at 9:30 a.m. each Tuesday and ending at 5:00 p.m. the following Monday.

D. The permit issued by the director shall set forth the number of persons authorized by the permit, the activities which are permitted, the permitted time and duration of the activities and the location or locations at which the activities may be conducted. All persons engaging in regulated activities under this chapter must be authorized representatives of a permittee and such persons must register in advance with the director. The provisions of Section 5.16.030 of this chapter shall be considered to be incorporated into, and made a part of, the terms and conditions of any permit issued under this chapter.

E. Permits shall not be valid and shall not be issued to any applicant for days on which the public areas at the zoo must be used for special functions.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.16.060 Late applications.

In an emergency and for good cause stated in the application, a person or organization may file an application later than Thursday of each week, to engage in regulated activities. Except for the time of filing, the application must comply with all other applicable requirements of this chapter. The director will issue a permit based on the standards set forth in this section if:

A. The late filing was not due to lack of diligence on the part of the applicant;

B. The filing does not unreasonably prejudice the city in preparing for the proposed activity;

C. No applicant who has filed in a timely manner will be displaced by the granting of a late-filed application.

(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.16.070 Denial of permit.

A. A permit applicant denied a permit by the director shall be furnished a written statement at the time of denial, indicating the reason or reasons the permit was denied. The applicant has five business days after receipt of the notice of denial to file with the city clerk a written protest to the denial. A copy of the written protest shall also be sent to the director.

B. The city council shall conduct a hearing and make a determination on the matter. The council shall, as soon as practicable, hear such protest, after reasonable notice to the protesting party and the director. The appealing party and the director shall have the opportunity to present evidence and to make argument. The formal rules of evidence shall not apply to the hearing and the city council shall make its ruling on the basis of a preponderance of the evidence presented at the hearing. The city council shall sustain, reverse or modify the action of the director and certify its action to the director.

C. If the city council sustains all or part of the zoo director's action in denying the permit, the permit applicant has five business days after action by the city council to file a written protest to the council's action with the city clerk.

D. Upon receipt of such written protest the city shall, within ten business days, apply to either the U.S. District Court for the Western District of Texas or the district courts for the county, for a judicial determination as to whether the action of the city council was proper, naming the applicant a party defendant. The city shall make every reasonable effort to have the issue heard on its merits without delay, and as soon as legally possible. The burden of showing that the action of the city council was proper shall rest on the city.

E. If the issue for judicial determination is not heard within fifteen days from the date the

complaint (or petition) is filed, then an interim permit shall be deemed issued under this section by operation of law, except where denial of the permit is based on the provisions of Section 5.16.030 C. of this chapter. Any interim permit under this subsection shall be subject to the same restrictions and obligations under which any permit under this chapter is issued.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.16.080 Suspension or revocation.

A. The permit of any person or organization who violates the terms of a permit issued under this chapter may be suspended or revoked by the director, after reasonable notice and an opportunity to be heard. The permittee shall have an opportunity to present evidence and to make argument. The formal rules of evidence shall not apply and the director shall make his decision on the basis of a preponderance of the evidence.

B. Any person who is authorized to engage in regulated activities under this chapter on behalf of a permittee may have his or her permission to engage in regulated activities suspended or revoked by the director in accordance with the procedures set forth in Section 5.16.080 A.

C. A person or organization may appeal a suspension or revocation of a permit or the suspension or revocation of the permission of a person to engage in regulated activities on behalf of a permittee, if such person or organization requests an appeal in writing, delivered to the city clerk not more than ten business days after notice of the suspension or revocation is received. A copy of the appeal shall also be furnished to the director. If the appeal is from a suspension, receipt of a written appeal by the city clerk will toll the period of suspension until the appeal is heard and decided by the city council.

D. The city council shall conduct the hearing and make the final determination on the matter. The council shall, as soon as practicable, hear such appeal, after reasonable notice to the appealing party and the director. The appealing party and the director shall have the opportunity to present evidence and to make argument. The formal rules of evidence shall not apply and the city council shall make its ruling on the basis of a preponderance of the evidence. The city council shall sustain, reverse or modify the action of the director and certify its action to the director. The decision of the city council is final.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

5.16.090 Violation—Penalty.

Any person who violates any provision of this chapter or who intentionally violates the terms of a permit issued to engage in regulated activities at the El Paso International Zoo shall be guilty of a misdemeanor and is punishable as provided in Sections 1.08.010 through 1.08.030 of this Code.
(Ord. No. 17691, § 1, 12-6-2011, eff. 2-29-2012)

Chapter 5.17

CREDIT ACCESS BUSINESSES

Sections:

5.17.010 Short title and purpose.

5.17.020 Definitions.

5.17.030 Violations; penalty.

5.17.040 Defenses.

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5.17.060 Registration application.

5.17.070 Issuance and display of certificate of registration; presentment upon request.

5.17.080 Expiration and renewal of certificate of registration.

5.17.090 Non-transferability.

5.17.100 Maintenance of records.

5.17.110 Restriction on extension of consumer credit.

5.17.120 Requirement of consumer understanding of agreement.

5.17.130 Referral to consumer credit counseling.

5.17.010 Short title and purpose.

A. This article may be known and cited as "credit access businesses regulation."

B. The purpose of this article is to protect the welfare of the citizens of the City of El Paso by monitoring credit access businesses in an effort to reduce abusive and predatory lending practices. To this end, this article establishes a registration program for credit access businesses, imposes restrictions on extensions of consumer credit made by credit access businesses, and imposes recordkeeping requirements on credit access businesses.
(Ord. No. 17924, § 1, 1-8-2013, eff. 7-1-2013; Ord. No. 18041, § 1, 7-16-2013, eff. 1-16-2014)

5.17.020 Definitions.

As used in this chapter:

1. "Certificate of registration" means a certificate of registration issued by the director under this article to the owner or operator of a credit access business.

2. "Consumer" means an individual who is solicited to purchase or who purchases the services of a credit access business.

3. "Consumer's language of preference" is the language the consumer understands best.

4. "Credit access business" has the meaning given that term in Section 393.601 of the Texas Finance Code.

5. "Deferred presentment transaction" has the meaning given that term in Section 393.601 of the Texas Finance Code.

6. "Director" means the director of the department designated by the city manager, or city manager's designee, to enforce and administer this chapter.

7. "Extension of consumer credit" has the meaning given that term in Section 393.001 of the Texas Finance Code.

8. "Motor vehicle title loan" has the meaning given that term in Section 393.601 of the Texas Finance Code.

9. "Person" means any individual, corporation, organization, partnership, association, financial institution, or any other legal entity.

10. "Registrant" means a person issued a certificate of registration for a credit access business under this chapter and includes all owners and operators of the credit access business identified in the registration application filed under this chapter.

11. "State license" means a license to operate a credit access business issued by the Texas Consumer Credit Commissioner under Chapter 393, Subchapter G of the Texas Finance Code.
(Ord. No. 17924, § 1, 1-8-2013, eff. 7-1-2013; Ord. No. 18041, § 1, 7-16-2013, eff. 1-16-2014)

5.17.030 Violations; penalty.

A. A person who violates a provision of this chapter, or who fails to perform an act required of the person by this chapter, commits an offense. A person commits a separate offense for each and every violation relating to an extension of consumer credit, and for each day during which a violation is committed, permitted, or continued.

B. An offense under this chapter is punishable by a fine of not more than five hundred dollars.

C. A culpable mental state is not required for the commission of an offense under this article and need not be proved.

D. The penalties provided for in subsection (b) are in addition to any other remedies that the city may have under city ordinances and state law.
(Ord. No. 17924, § 1, 1-8-2013, eff. 7-1-2013; Ord. No. 18041, § 1, 7-16-2013, eff. 1-16-2014)

5.17.040 Defenses.

It is a defense to prosecution under this article that at the time of the alleged offense the person was not required to be licensed by the state as a credit access business under Chapter 393, Subchapter G of the Texas Finance Code.
(Ord. No. 17924, § 1, 1-8-2013, eff. 7-1-2013; Ord. No. 18041, § 1, 7-16-2013, eff. 1-16-2014)

5.17.050 Registration required.

A person commits an offense if the person acts, operates, or conducts businesses as a credit access business without a valid certificate of registration. A certificate of registration is required for each physically separate credit access business.
(Ord. No. 17924, § 1, 1-8-2013, eff. 7-1-2013; Ord. No. 18041, § 1, 7-16-2013, eff. 1-16-2014)

5.17.060 Registration application.

A. To obtain a certificate of registration for a credit access business, a person must submit an application on a form provided for that purpose to the director. The application must contain the following:

1. The name, street address, mailing address, facsimile number, and telephone number of the applicant.

2. The business or trade name, street address, mailing address, facsimile number, and telephone number of the credit access business.

3. The names, street addresses, mailing addresses, and telephone numbers of all owners of the credit access business, and the nature and extent of each person's interest in the credit access business.

4. A copy of a current, valid state license held by the credit access business pursuant to Chapter 393, Subchapter G of the Texas Finance Code.

5. A copy of a current, valid certificate of occupancy showing that the credit access business is in compliance with the City of El Paso Code.

6. A nonrefundable application fee for the amount established.

B. An applicant or registrant shall notify the director within forty-five days after any material change in the information contained in the application for a certificate of registration, including, but not limited to, any change of address and any change in the status of the state license held by the applicant or registrant.
(Ord. No. 17924, § 1, 1-8-2013, eff. 7-1-2013; Ord. No. 18041, § 1, 7-16-2013, eff. 1-16-2014)

5.17.070 Issuance and display of certificate of registration; presentment upon request.

A. The director shall issue to the applicant a certificate of registration upon receiving a completed application under Section 5.17.040.

B. A certificate of registration issued under this section must be conspicuously displayed to the public in the credit access business. The certificate of registration must be presented upon request to the director or any peace officer for examination.
(Ord. No. 17924, § 1, 1-8-2013, eff. 7-1-2013; Ord. No. 18041, § 1, 7-16-2013, eff. 1-16-2014)

5.17.080 Expiration and renewal of certificate of registration.

A. A certificate of registration expires on the earliest of:

1. One year after the date of issuance; or

2. The date of revocation, suspension, surrender, expiration without renewal, or other termination of the registrant's state license.

B. A certificate of registration may be renewed by making application in accordance with Section 5.17.040. A registrant shall apply for renewal at least thirty days before the expiration of the registration.
(Ord. No. 17924, § 1, 1-8-2013, eff. 7-1-2013; Ord. No. 18041, § 1, 7-16-2013, eff. 1-16-2014)

5.17.090 Non-transferability.

A certificate of registration for a credit access business is not transferable.
(Ord. No. 17924, § 1, 1-8-2013, eff. 7-1-2013; Ord. No. 18041, § 1, 7-16-2013, eff. 1-16-2014)

5.17.100 Maintenance of records.

A. A credit access business shall maintain a complete set of records of all extensions of consumer credit arranged or obtained by the credit access business, which mush include the following information:

1. The name and address of the consumer.

2. The principal amount of cash actually advanced.

3. The length of the extension of consumer credit, including the number of installments and renewals.

4. The fees charged by the credit access business to arrange or obtain an extension of consumer credit; and

5. The documentation used to establish a consumer's income under Section 5.17.110.

B. A credit access business shall maintain a copy of each written agreement between the credit access business and a consumer evidencing an extension of a consumer credit (including, but not limited to, any refinancing or renewal granted to the consumer).

C. A credit access business shall maintain copies of all quarterly reports filed with the Texas Consumer Credit Commissioner under Section 393.627 of the Texas Finance Code.

D. The records required to be maintained by a credit access business under this section must be retained for at least three years and made available for inspection by the city upon request during the usual and customary business hours of the credit access business.
(Ord. No. 17924, § 1, 1-8-2013, eff. 7-1-2013; Ord. No. 18041, § 1, 7-16-2013, eff. 1-16-2014)

5.17.110 Restriction on extension of consumer credit.

A. The cash advanced under an extension of consumer credit that a credit access business obtains for a consumer or assists a consumer in obtaining in the form of a deferred presentment transaction may not exceed twenty percent of the consumer's gross monthly income.

B. The cash advanced under an extension of consumer credit that a credit access business obtains for a consumer or assists a consumer in obtaining in the form of a motor vehicle title loan may not exceed the lesser of:

1. Three percent of the consumer's gross annual income; or

2. Seventy percent of the retail value of the motor vehicle.

C. A credit access business shall use a paycheck or other documentation establishing income to determine a consumer's income.

D. An extension of consumer credit that a credit access business obtains for a consumer or assists a consumer in obtaining and that provides for repayment in installments may not be payable in more than four installments. Proceeds from each installment must be used to repay at least twenty-five percent of the principal amount of the extension of consumer credit. An extension of consumer credit that provides for repayment in installments many not be refinanced or renewed.

E. An extension of consumer credit that a credit access business obtains for a consumer or assists a consumer in obtaining and that provides for a single lump sum repayment may not be refinanced or renewed more than three times. Proceeds from each refinancing or renewal must be used to repay at least twenty-five percent of the principal amount of the original extension of consumer credit.

F. For purposes of this section, an extension of consumer credit that is made to a consumer within seven days after a previous extension of consumer credit has been paid by the consumer will constitute a refinancing or renewal.
(Ord. No. 17924, § 1, 1-8-2013, eff. 7-1-2013; Ord. No. 18041, § 1, 7-16-2013, eff. 1-16-2014)

5.17.120 Requirement of consumer understanding of agreement.

A. Every agreement between the credit access business and a consumer evidencing an extension of consumer credit (including, but not limited to, any refinancing or renewal granted to the consumer), must be written in the consumer's language of preference. Every credit access business location must maintain on its premises, to be available for use by consumers, agreements in the English and Spanish languages.

B. For every consumer who cannot read, every agreement between the credit access business and a consumer evidencing an extension of consumer credit (including, but not limited to, any refinancing or renewal granted to the consumer) must be read to the consumer in its entirety in the consumer's language of preference, prior to the consumer's signature.

C. For every consumer who cannot read, every disclosure and notice required by law must be read to the consumers in its entirety in the consumer's language of preference, prior to the consumer's signature.
(Ord. No. 17924, § 1, 1-8-2013, eff. 7-1-2013; Ord. No. 18041, § 1, 7-16-2013, eff. 1-16-2014)

5.17.130 Referral to consumer credit counseling.

A credit access business shall provide a form, to be prescribed by the Director, to each consumer seeking assistance in obtaining an extension of consumer credit which references non-profit agencies that provide financial education and training programs and agencies with cash assistance programs. The form will also contain information regarding extensions of consumer credit, and must include the information required by Section 5.17.100 A.1.—5. specific to the loan agreement with the consumer. If the Director has prescribed a form in the consumer's language of preference, the form must be provided to the consumer's language of preference.
(Ord. No. 17924, § 1, 1-8-2013, eff. 7-1-2013; Ord. No. 18041, § 1, 7-16-2013, eff. 1-16-2014)

Chapter 5.18

CONVENIENCE STORE REGULATION

Sections:

5.18.010 Purpose.

5.18.020 Definitions.

5.18.030 Registration of convenience stores and fees.

5.18.040 Issuance, denial, and display of registration.

5.18.050 Suspension and revocation of registration.

5.18.060 Expiration and renewal of registration.

5.18.070 Appeal.

5.18.080 Enforcement, violations, and penalties.

5.18.090 Requirements for convenience stores.

5.18.110 Severability.

5.18.010 Purpose.

The purpose of this chapter is to protect the health, safety, and welfare of the citizens of the City of El Paso by reducing the occurrence of crime, preventing the escalation of crime, and increasing the successful prosecution of crime that occurs in convenience stores within the city limits. To this end, this chapter establishes a registration program for convenience stores and provides requirements relating to surveillance camera systems, video recording and storage systems, alarm systems, drop safes, security signs, height markers, protection of inventory, store visibility, safety training programs, and prosecution statements and trespass affidavits.

(Ord. No. 19267, § 1, 12-7-2021)

5.18.020 Definitions.

As used in this chapter, the following words or terms shall have the meanings ascribed in this section, unless the context of their usage clearly indicates another meaning:

"Convenience goods" means basic food, beverage, household, and pharmaceutical items.

"Convenience store" means any business with extended hours and convenient location that is primarily engaged in the retail sale of convenience goods and gasoline, designed to accommodate a large volume of stop and go traffic. Convenience store does not include any business where there is no retail floor space accessible to the public even if gasoline is sold.

"Days" means calendar days.

"Drop safe" means a cash management device where money can be deposited without the depositor having access to contents.

"Employee" means any person, whether or not the person is designated as an employee, contract employee, agent or otherwise, who renders any service whatsoever to the customers of a convenience store, works in or about a convenience store or who conducts any business in a convenience store and who receives or has the expectation of receiving any compensation, monetary wages, commissions or profits from the convenience store. By way of example, rather than limitation, the term includes the owner, other management personnel, clerks, and cashiers. Employee does not include a person exclusively on the premises for the limited purpose of providing janitorial, repair or maintenance services for the premises or for the delivery of convenience goods by a vendor or distributor to the premises.

"Height marker" means a measuring strip that may be attached on or near a doorframe of a convenience store to aid in identifying the height of a person suspected of committing a crime.

"Manager" means the person designated by the owner to be responsible for the daily operation of a convenience store. Managers shall be designated in the registration application filed under this chapter.

"Owner" means the person or persons who hold title to or leases property for the purpose of operating a convenience store, including any lien holder or any other person with a financial interest in the store.

"Person" means any individual, corporation, organization, partnership, association, or any other legal entity.

"Registered agent" means the person identified by the owner of a convenience store in the registration filed pursuant to this chapter that is authorized to receive on behalf of the owner any legal process and/or notice required or provided for in this chapter.
(Ord. No. 19267, § 1, 12-7-2021)

5.18.030 Registration of convenience stores and fees.

A. No person shall operate or cause to be operated a convenience store without a valid certificate of registration issued by the El Paso Police Department. A separate certificate of registration is required for each physically separate convenience store located within city limits.

B. The owner shall pay to the city all established fees for the registration provided in accordance with this chapter.

C. To obtain a valid certificate of registration for a convenience store and a registration compliance decal, the owner of the store must apply on the form provided by the El Paso Police Department. The application must contain all of the following information:

1. The name, street address, mailing address, telephone number, and facsimile number of the convenience store. The use of a public or private post office box or similar address shall not be sufficient for the purposes of complying with this subsection.

2. The name, residential address, telephone number, and e-mail address of the owner of the convenience store. If the owner is a corporation, whether foreign or domestic, the name of the registered agent of the owner, business address, telephone number, facsimile number, and e-mail address of the registered agent. The address information shall include the street name and number, office or suite number if a business address, the city, state, and zip code. The use of a public or private post office box or similar address shall not be sufficient for the purposes of complying with this subsection.

3. The nature and extent of the owner's interest in the property. If there is more than one owner, lien holder or other persons with a financial interest in the convenience store, then the name, residential address, and telephone number of each such person as well as the nature and extent of such person's interest in the property. The use of a public or private post office box or similar address shall not be sufficient for the purposes of complying with this subsection.

4. The name, street address, mailing address, telephone number, facsimile number, and e-mail address of the current manager of the convenience store. The use of a public or private post office box or similar address shall not be sufficient for the purposes of complying with this subsection.

5. The name, address, telephone number, and e-mail address of a person or persons who can be contacted twenty-four hours a day, seven days a week, in the event of an emergency condition involving the convenience store.

6. Such additional information as the applicant desires to include or that the chief of police deems necessary to aid in the determination of whether the requested registration should be granted.

D. Any change in the ownership of a convenience store, including but not limited to the sale of the convenience store or any ownership interest therein, shall require the purchaser or transferee to obtain a new registration issued by the El Paso Police Department within thirty days of the effective date of ownership change.

1. The prior owner, lien holder, or any other person with a financial interest shall advise the El Paso Police Department, in writing, that he or she no longer holds any ownership interest in the property within ten days of the effective date of ownership change.

E. Any change in the manager or registered agent shall require the owner to update the information provided to the El Paso Police Department

on the registration application form within ten business days of the effective date of said change.

F. Any owner of a newly constructed or established convenience store shall comply with the provisions of this section not later than the thirtieth day following completion of construction or new opening of the convenience store, whichever occurs first.

G. A certificate of registration for a convenience store is not transferable.
(Ord. No. 19267, § 1, 12-7-2021)

5.18.040 Issuance, denial, and display of registration.

A. Upon the filing of a completed application for the registration of a convenience store, the El Paso Police Department shall issue the owner of the convenience store a certificate of registration along with a registration compliance decal.

B. If the chief of police, code director or his designee determines that the application for registration is incomplete or contains a false statement as to a material matter in the application, then the application shall be denied. If an application for registration of a convenience store is denied, then the chief of police or his designee shall deliver written notice to the owner or registered agent that the application is denied, including the reason for the denial and a statement informing the owner of the right of appeal.

C. The certificate of registration, if granted, shall state on its face the name and address of the convenience store, the name of the owner(s) or registered agent, the name of the manager, and the expiration date. The certificate of registration shall be posted in a conspicuous place accessible at all times to the public. The registration compliance decal must be continuously and conspicuously displayed above the main public entrance door to the convenience store and in a manner as to not obstruct the view into the store.

D. Any El Paso police officer, code enforcement officer, inspector or designated inspector of the city shall be authorized to make inspections of the establishment and issue citations or notice of violation to any person found to be in violation of this chapter.
(Ord. No. 19267, § 1, 12-7-2021)

5.18.050 Suspension and revocation of registration.

A. The chief of police, code director, or his designee shall issue a notice of suspension for a convenience store if he or his designee determines that:

1. The owner failed to comply with any provision of this chapter; or

2. The owner made a false statement as to a material fact in the application or in a hearing concerning the certificate of registration.

3. The chief of police, code director, or his designee may suspend a certificate of registration for up to sixty calendar days.

B. The chief of police, code director, inspector or his designee shall revoke a certificate of registration for a convenience store if he or his designee determines that:

1. The owner failed to comply with any provision of this chapter; or

2. The owner made a false statement as to a material fact in the application or in a hearing concerning the certificate of registration.

3. The city may revoke the certificate of registration when more than three violations have been documented during the term of the certificate.

C. Before issuing a suspension or revoking a certificate of registration, the chief of police, code director, inspector or his designee shall deliver written notice by personal delivery or certified mail to the owner or registered agent that the certificate of registration is being considered for suspension or revocation. The notice must include the reason for the proposed suspension or revocation, corrective action the owner must take to prevent the suspension or revocation, and a statement that the owner has twenty-one days after the date of delivery to comply with the notice.

1. If, after twenty-one days from the date the notice is delivered, the owner has not complied

with the notice, the chief of police, code director, inspector or his designee shall suspend or revoke the certificate of registration and deliver written notice of the suspension or revocation to the registered agent. The notice must include the reason for the suspension or revocation, the date the action was ordered, and a statement informing the owner of the right to appeal.
(Ord. No. 19267, § 1, 12-7-2021)

5.18.060 Expiration and renewal of registration.

A. A certificate of registration for a convenience store expires one year after the date of issuance.

B. A certificate of registration may be renewed by making application in accordance with this chapter. An owner shall apply for renewal at least thirty days before the expiration of the certificate of registration.
(Ord. No. 19267, § 1, 12-7-2021)

5.18.070 Appeal.

A. When the chief of police, code director, inspector or his designee issues a written notice of intent to deny, suspend, revoke, or deny renewal of a certificate of registration, the chief of police or his designee shall immediately send such notice to the owner or registered agent by personal delivery or certified mail. The notice shall be directed to the most current business address or other mailing address on file with the El Paso Police Department for the owner.

B. The owner or registered agent who has been served with a denial, suspension, or revocation notice may appeal the chief of police or his designee's action to the city manager or his designee within ten (10) days of receiving such notice. Said appeal shall also include a written rebuttal.

C. An administrative hearing shall be held no later than thirty days after an appeal is received by the city manager or his designee. All documents relevant to the certificate of registration shall be forwarded to the city manager or his designee. The city manager or his designee shall review all relevant documents, the appellant's appeal, and written rebuttal. The city manager or his designee may allow the appellant to make an oral argument, present evidence and witnesses, and submit additional rebuttal evidence.

D. The city manager or his designee shall issue a written decision to the parties within ten days of the hearing. If the decision is to deny, suspend, revoke, or not renew the certificate of registration, the decision shall become effective on the thirtieth day after it is rendered. If the decision is that no grounds exist for denial, revocation, denial of renewal, or denial of renewal, the city manager or his designee shall, contemporaneously with the issuance of the decision, order the chief of police to immediately issue a certificate of registration.
(Ord. No. 19267, § 1, 12-7-2021)

5.18.080 Enforcement, violations, and penalties.

A. The chief of police, code director, inspector or their designee shall implement and enforce this chapter. The chief of police may by written order establish such rules, regulations or procedures, not inconsistent with this chapter, as he determines are necessary to discharge any duty under or to affect the policy of this chapter.

B. It shall be unlawful for any person to operate or cause to be operated a convenience store without a valid certificate of registration as required by this chapter. A person who violates any provision of this chapter, or who fails to perform an act required of the person by this chapter, shall be guilty of a Class C misdemeanor. A person commits a separate offense each day or portion of a day during which a violation is committed, permitted, or continued.

C. An offense under this chapter is punishable by a fine of no more than five hundred dollars.

D. The penalties provided above are in addition to any other enforcement remedies that the City of El Paso may have under city ordinance or state law.
(Ord. No. 19267, § 1, 12-7-2021)

5.18.090 Requirements for convenience stores.

A. Surveillance Camera Systems, Recordings, and Storage. The owner shall provide, maintain, and operate at least four color digital high-resolution surveillance cameras with a minimum resolution of two mega pixels, a minimum aspect ratio of one thousand nine hundred twenty horizontal pixels by one thousand eighty vertical pixels, and a minimum frame rate of fifteen frames per second. A fifth camera is required if the store is equipped with an additional entrance and exit. The owner shall also provide one or more digital video recording devices (NVR/DVR) in a secure location in the convenience store in compliance with this subsection.

1. The position of the first camera must have an overall view of the counter/register area and the other camera a view of the main entrance and exit area. The position of the second camera at the entrance and exit area must be done in a way to provide a clear and identifiable full frame view of the face of each individual filmed entering or exiting the main public entrance or exit of the store. The third camera should capture the exterior front of the business, to include parking lot area. The fourth camera should cover the sales floor leading to the beer coolers.

2. Each camera shall accurately display the date and time of the recording. Owner should review accuracy of the date and time on a regular basis or upon a system change.

3. The coverage areas of both cameras must remain unobstructed by any display, sign, or other items at all times.

4. Each camera must be operating and capable of recording at all times, including hours when the store is not open for business. Each camera must be operated in a fixed position and not in a panning motion.

5. A sign both in English and Spanish stating "STORE IS UNDER CAMERA SURVEILLANCE," in letters at least two inches high must be posted at each public entrance and exit of the convenience store and must be readable from inside and outside the store.

6. The video recording devices must be designed, equipped, and operated at a minimum to digitally record images and video from the surveillance cameras every time motion occurs in the convenience store, whether or not the store is open for business.

7. The owner or manager shall have the capability to provide the El Paso Police Department's initial responding patrol officer with digital color images and video recordings in connection with any crime investigation at or near the convenience store within fifteen minutes of the officer's dispatched arrival and within forty-eight hours if requested by a detective.

8. All digital color images and video recordings must be stored and maintained for at least thirty days.

B. Property Inspections. An owner or manager shall permit, at reasonable times upon request, representatives of the El Paso Police Department to inspect the interior and exterior of the convenience store, including but not limited to surveillance camera systems, for the purpose of ensuring compliance with this chapter.

1. An owner or manager commits an offense if, either personally or through an agent or employee, the owner or manager refuses to permit a lawful inspection of the convenience store as required by this section.

C. Alarm System. An owner shall provide, maintain, and operate an alarm system in the convenience store in compliance with Chapter 5.13 Security alarm systems of the El Paso City Code and with this section. This system shall, at a minimum, include a panic button located within reach of the cash register and out of view of the customer. Such panic button will generate an alarm signal indicating a hold-up or other life-threatening emergency requiring an emergency response. A convenience store shall have posted at all public entrances and exits signs or decals both in English and Spanish indicating that a security alarm system is in use.

D. Drop Safes. An owner shall provide and maintain a drop safe on the premises of the con-

venience store to keep the amount of cash available to employees to a minimum. A drop safe must be bolted to the floor of the convenience store. A convenience store shall have posted at all public entrances and exits signs or decals in English and Spanish indicating that employees cannot open the safe and that employees have minimum cash on hand.

E. Security Signs. An owner shall provide, post, and maintain security signs in the convenience store. Signs stating in both English and Spanish, "NO SOLICITATION" and "NO TRESPASSING," in letters at least two inches high must be posted at each public entrance and exit of the convenience store. The signs may contain additional language as required by law and must be in a format approved by the chief of police.

F. Height Markers. Convenience stores shall install two height markers at the entry and exit doors of the business to aid in the estimation of an individual's height. These markers will be multicolored to designate different heights. The markers must be visible and not obstructed by any display or other such covering.

G. Protection of Inventory. An owner, manager, or employee of a convenience store shall secure, lock, block, or otherwise mark off goods and inventory not available for sale in such a manner that customers cannot access such items while the store is open for business. When it is not logistically possible to secure and lock the goods or inventory, the owner or operator of a convenience store will block, cover, or mark off goods and inventory not available for sale in such a manner that customers cannot purchase such items while the store is open for business.

H. Store Visibility. The owner or manager shall provide for and maintain an unobstructed line of sight allowing a clear view of and from the cash register and sales transaction area through all windows and public access doors. Such windows and doors must be clear of all items that would obstruct a clear view, including but not limited to tinting, signage, advertisements, shelving, and merchandise.

I. Employee Safety Training and Telephone Access. An owner shall ensure that safety training is provided for and completed by employees of the convenience store. Each employee of a convenience store shall annually complete a safety-training program approved by the chief of police or his designee. The safety training program must include, but is not limited to, the following subjects: (1) Texas Penal Code in reference to theft and robbery chapters, (2) basic safety awareness tactics, (3) mental preparation when dealing with a theft, (4) operation of security devices, (5) knowledge of this chapter and how it pertains to their duties as a store employee, and (6) knowledge of store policies and training requirements.

1. Each employee shall annually complete the online safety-training program and test provided by the El Paso Police Department. New employees shall complete the training and test within ten days after beginning employment with the convenience store.

2. Each employee shall sign a statement indicating the date, time, and place of completion of the safety training program. Copies of each employee's statements must be maintained on file in the convenience store for as long as the employee is employed by the convenience store. The statements must be made available to the chief of police or any other peace officer immediately upon request.

3. Telephone access must be provided at each convenience store for use by employees.

J. Trespass Affidavits and Prosecution Statement. An owner of a convenience store shall execute a trespass affidavit, and statement of prosecution on a form provided by the El Paso Police Department, that authorizes the El Paso Police Department to enforce, on behalf of the owner, all applicable trespass laws on the premises of the convenience store. A true and correct copy of the trespass affidavit must be posted at the convenience store in a manner and location so that it is clearly visible to the public at all times.
(Ord. No. 19267, § 1, 12-7-2021)

5.18.110 Severability.

This ordinance and each section and provision of said ordinance hereunder, are hereby declared to be independent divisions and subdivisions and, not withstanding any other evidence of legislative intent, it is hereby declared to be the controlling legislative intent that if any provisions of said ordinance, or the application thereof to any person or circumstance is held to be invalid, the remaining sections or provisions and the application of such sections and provisions to any person or circumstances other than those to which it is held invalid, shall not be affected thereby, and it is hereby declared that such sections and provisions would have been passed independently of such section or provision so known to be invalid. Should any procedural aspect of this ordinance be invalidated, such invalidation shall not affect the enforceability of the substantive aspects of this ordinance.

(Ord. No. 19267, § 1, 12-7-2021)

Chapter 5.19

SIGNAGE FOR SINGLE-USER RESTROOMS

Sections:

5.19.010 Definitions.
5.19.020 Applicability.
5.19.030 Signage required.
5.19.040 Offense and penalty.

5.19.010 Definitions.

As used in this chapter, the following words or terms shall have the meanings ascribed in this section, unless the context of their usage clearly indicates another meaning:

A. "Gender neutral signage" means a sign that indicates a restroom without preference to a specific gender.

B. "Private or private use restroom" means plumbing fixtures in residences and apartments, private bathrooms in hotels and hospitals, and restrooms in commercial establishments where the fixtures are intended for the use of a family or an individual and are accessible only from a private room or office.

C. "Single-user restroom" means a lockable restroom available for an individual for use with or without assistance.
(Ord. No. 019569, § 2, 11-21-2023)

5.19.020 Applicability.

This chapter applies to single-user restrooms within commercial facilities that are not private or private use restrooms. This article is an additional requirement to those already required by the City Code.
(Ord. No. 019569, § 2, 11-21-2023)

5.19.030 Signage required.

A. A single-user restroom subject to this article must have gender-neutral signage.

B. A person with control over a commercial facility with at least one single-user restroom shall install and maintain gender-neutral signage for each single-user restroom.
(Ord. No. 019569, § 2, 11-21-2023)

5.19.040 Offense and penalty.

A. A person who violates or fails to comply with a requirement of this article commits an offense.

B. An offense under this chapter is a Class C misdemeanor offense.
(Ord. No. 019569, § 2, 11-21-2023)

Title 6

TRANSPORTATION FOR HIRE*

Chapters:

6.04 **Transportation for Hire**

6.36 **Driverless Automobiles**

***Editor's note—**Ord. No. 18546, § 1, adopted Aug. 9, 2016, repealed the former Title 6, Ch. 6.04, §§ 6.04.010—6.04.070; Ch. 6.08, §§ 6.08.010—6.08.060; Ch. 6.12, §§ 6.12.010—6.12.130; Ch. 6.16, §§ 6.16.010—6.16.580; Ch. 6.20, §§ 6.20.010—6.20.120; Ch. 6.24, §§ 6.24.010—6.24.030; Ch. 6.28, §§ 6.28.010—6.28.150; Ch. 6.32, §§ 6.32.010—6.32.170; Ch. 6.34, §§ 6.34.010—6.34.160; Ch. 6.36, §§ 6.36.010—6.36.130; Ch. 6.40, §§ 6.40.010—6.40.130, and enacted a new Title 6 as set out herein. The former Title 6 pertained to vehicles for hire, passenger buses and streetcars, chauffer's license, taxicabs, international taxicabs, jitneys, sightseeing or charter services, limousine service, nonmotorized vehicles for hire, driverless automobiles, and emergency and transfer ambulance services, and derived from the prior code § 22-1—22-21, 22-23—21-35, 22-37—22-132, 22-134, 22-136—22-143, 22-147—22-155, 22-157, 22-158, 22-162, 22-163, 22-166; Ord. 8296 § 1 (part), 1985; Ord. 8354 §§ 1—3, 1985; Ord. 8498 §§ 1—6, 1985; Ord. 8582 §§ 1, 2, 1986; Ord. 8729 §§ 1—10, 1986; Ord. 8753 §§ 1—3, 1986; Ord. 8846 §§ 1—3, 1986; Ord. 8897 §§ 1—7, 1987; Ord. 8932 § 1, 1987; Ord. 8979 §§ 1, 2, 1987; Ord. 9036 §§ 1, 2, 1987; Ord. 9069, 1987; Ord. 9108, 1987; Ord. 9124, 1987; Ord. 9195, 1987; Ord. 9209, 1987; Ord. 9516, 1988; Ord. 9517, 1988; Ord. 9584 (part), 1988; Ord. 9603, 1989; Ord. 9641, 1989; Ord. 9706, 1989; Ord. 9726 (part), 1989; Ord. 9820, 1989; Ord. 9933, 1990; Ord. 9988, 1990; Ord. 9989, 1990; Ord. 9990, 1990; Ord. 9991, 1990; Ord. 10016, 1990; Ord. 10368 § 1, 1991; Ord. 10432 § 1, 1991; Ord. 10490 §§ 1—7, 1991; Ord. 1143 § 1, 1992; Ord. 10938, 1992; Ord. 11142, § 1, 1992; Ord. 11245, 1992; Ord. 11338 §§ 1—16, 1993; Ord. 11339, 1993; Ord. 12107 §§ 1—18, 1994; Ord. 13152 §§ 24, 25, 1997; Ord. 13295 § 1 (part), 1997; Ord. 14189, 1999; Ord. 15232 § 1, 2002; Ord. 15492 § 1, 2003; Ord. 15580 §§ 1, 2, 2003; Ord. 15659 §§ 1—7, 9—12, 2004; Ord. 16363 §§ 1, 2, 2006; Ord. 16411 §§ 1, 2, 2006; Ord. 16811 §§ 1—7, 2007; Ord. 17006 §§ 1, 2, 2008; Ord. 17027, § 1, 11-18-2008; Ord. No. 17048, § 1, 1-6-2009; Ord. No. 17397, § 1, 8-24-2010, eff. 9-1-2010.

Chapter 6.04

TRANSPORTATION FOR HIRE*

Sections:

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6.04.020 Administration.

6.04.030 Exclusions; applicability.

6.04.040 Definitions.

6.04.050 General authority and duty of the appropriate enforcement authority.

6.04.060 Enforcement.

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6.04.080 Operating authority permit—Term.

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6.04.110 Drivers—Qualifications.

6.04.120 Operating authority permit—Fees.

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6.04.140 Operating authority permit and taxicab zone permit denial, suspension, revocation—Appeal.

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***Editor's note**—Ord. No. 18894, § 1, adopted Jan. 8, 2019, amended chapter 6.04 in its entirety to read as herein set out. The historical notation has been retained with the amended provisions for reference purposes.

Article IV. Sightseeing, Charter, Limousine and Shuttle Operations

6.04.410 Services provided.

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Article V. International Transportation-for-Hire

6.04.450 International transportation-for-hire vehicle permit—Required.

6.04.460 International transportation-for-hire vehicle permit—Term.

6.04.470 International transportation-for-hire vehicle permit—Application.

6.04.480 International transportation-for-hire—Operational limitations.

Article I. General Provisions

6.04.010 Purpose.

The City of El Paso sets forth transportation-for-hire industry regulations to accomplish the following:

A. Protection of public welfare;

B. Availability of multiple public transportation options from which consumers may select; and

C. Facilitation of free enterprise and competition within the transportation-for-hire industry.
(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.04.020 Administration.

The chief of police, or designee(s), may establish rules and forms to administer and enforce this chapter. Unless otherwise stated in this chapter, the terms chief of police, airport director, and animal control officer or veterinarian employed by or contracted with the city shall include the specified position and/or designee(s).
(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.04.030 Exclusions; applicability.

A. This chapter does not apply to:

1. Government-owned and/or operated vehicles;

2. Courtesy vehicles;

3. Carpool or vanpool arrangement or service;

4. The transportation of a person by a transportation-for-hire vehicle licensed by another governmental entity from a point outside the city to a destination inside the city, if the transportation-for-hire vehicle leaves the city without receiving a passenger inside the city;

5. A motor vehicle used to transport persons for hire that is regulated by another title of this Code, such as private ambulances regulated under Title 9; or

6. A bus or shuttle vehicle that is:

a. Operated for a funeral home in the performance of funeral services;

b. Provided by an employer or employee association for use in transporting employees between the employees' homes and the employer's place of business or between workstations, with the employees reimbursing the employer or employee association in an amount calculated only to offset the reasonable expenses of operating the vehicle;

c. Owned and operated by the federal or state government, by a political subdivision of the state, or by a person under contract with the city for operation of the vehicle;

d. Used to transport children to or from school if only a fee calculated to reasonably cover expenses is charged;

e. Operated under state or federal authority; or

f. Owned by a nonprofit organization and carrying only passengers associated with that organization, if no compensation is received from any other person for carrying the passengers.

B. Any person currently performing transportation-for-hire services who does not hold a permit or license to operate the same or similar services issued under a previous El Paso Municipal Code ordinance or chapter, and who does not meet an exception to regulation under this chapter, is subject to the regulations, requirements, prohibitions, and/or conditions and shall be in full compliance with this chapter no later than one hundred eighty days after the chapter is in full force and effect.

C. Any person currently performing transportation-for-hire services who holds a valid permit or license issued under a previous El Paso Municipal Code ordinance or chapter, and who does not meet an exception to regulation under this chapter, shall be deemed compliant with the portions of this chapter requiring a permit until such time as any permit or license previously issued becomes expired.

(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.04.040 Definitions.

The definition of a term in this chapter applies to each grammatical variation of the term unless the context specifies a different definition.

A. "Alternative transportation-for-hire vehicles" includes pedi-cabs, horse-drawn carriages, low speed vehicles and neighborhood electric vehicles.

B. "Appropriate enforcement authority" means the chief of police, the airport director, or an animal control officer or veterinarian employed by or contracted with the city or their designee(s) who have enforcement authority as described in this chapter.

C. "Bicycle" carries the same definition as that provided in V.T.C.A., Transportation Code § 541.201.

D. "Bus" means a motor vehicle that has a manufacturer's rated seating capacity of more than ten passengers.

E. "Carpool or vanpool" means any voluntary sharing of transportation without compensation.

F. "Chief of police" means the director of the police department and includes representatives, agents, or department employees or designee(s) as designated by the chief of police to carry out duties under this chapter.

G. "Compensation" means any money, service, or other thing of value that is received, or is to be received, in return for transportation-for-hire services.

H. "Courtesy vehicle" means a vehicle that is not for hire or used to transport passengers for compensation, and is operated by or for a business to provide free transportation to customers as an accessory to the main business activity.

I. "Director of the airport" means the city's director of aviation or designee.

J. "Dispatch" means any communication system that conveys passenger ride requests to drivers.

K. "Drive" means to control the physical movements of a transportation-for-hire vehicle.

L. "Driver" means an individual who drives or otherwise controls the physical movements of a transportation-for-hire vehicle. Drivers may be an employee, an independent contractor, or other person who is performing the transportation services of a transportation-for-hire service.

M. "Electric bicycle" carries the same definition as that provided in V.T.C.A., Transportation Code § 541.201.

N. "Horse" means any member of the species Equus caballus.

O. "Horse-drawn carriage" means an alternative vehicle designed to carry passengers while being pulled by one or more horses.

P. "International transportation-for-hire vehicle" means any motor vehicle that transports passengers for hire from cities in Mexico to the City of El Paso.

Q. "Low speed vehicle" or "LSV" means a motor vehicle that is four-wheeled with a speed attainable in one mile of not more than twenty-five miles per hour on a paved level surface, and whose GVWR is less than three thousand pounds.

R. "Meter" means a device that measures the time and distance of a trip.

S. "Motor vehicle" means a vehicle that is self-propelled, capable of transporting a person or persons or any material, and is required to be registered under the laws of the State of Texas.

T. "Neighborhood electric vehicle" or "NEV" means a vehicle that can attain a maximum speed of thirty-five miles per hour on a paved level surface and otherwise complies with Federal Motor Safety Standard 500 (49 C.F.R. Section 571.500) for LSVs.

U. "Operating authority" means a person who is granted operating authority under this chapter to provide transportation-for-hire services either personally or through employees or contracted individuals.

V. "Operating authority permit" means the permit required by this chapter to provide transportation-for-hire services. Issuance of such a permit grants permission to the holder to provide transportation-for-hire services within the city.

W. "Pedi-cab" means an alternative bicycle or tricycle, including an electric bicycle or tricycle, which transports passengers occupying seats attached to a trailer, sidecar or similar device, for compensation.

X. "Person" means an individual, corporation, agency, trust, partnership, or two or more persons having a joint or common economic interest.

Y. "Shuttle vehicle" means a motor vehicle that has a manufacturer's rated seating capacity of not less than seven passengers and not more than fifteen passengers.

Z. "Sightseeing tour vehicle" means a vehicle operated as a transportation-for-hire service that transports passengers, and makes interim stops at one or more locations deemed to be tourist attractions, historical sites or other points of interest, with such trips originating inside or outside the city to any point within the city when such trips conclude and discharge passengers at the same location at which passengers were picked up. This definition does not include any such vehicles regulated by federal regulation providing like services.

AA. "Transportation-for-hire by appointment" means transportation-for-hire service arranged and provided by pre-scheduling of services through communication by phone, e-mail, website or other means.

BB. "Transportation-for-hire service" means the business of offering or providing transportation of persons for compensation.

CC. "Transportation-for-hire vehicle" means any vehicle, motor vehicle, shuttle, limousine or alternative vehicle, including alternative transportation-for-hire vehicles, used to offer or provide transportation-for-hire services.

DD. "Vehicle" means a device in or by which a person or property is or may be transported or drawn on a public highway (including a road, street, bridge or thoroughfare), other than a device used exclusively on stationary rails or tracks. Sightseeing tour vehicles, pedi-cabs, horse-drawn carriages, NEVs and LSVs are vehicles for purposes of this chapter.

EE. "Wheelchair accessible vehicle" means a vehicle designed or modified to transport passengers in wheelchairs or other mobility devices and conforming to the requirements of the Americans with Disabilities Act (ADA).

(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.04.050 General authority and duty of the appropriate enforcement authority.

A. The chief of police shall implement and enforce this chapter, except where otherwise noted, and may by written order establish such rules or regulations, not inconsistent with this chapter or state or federal law, as he determines are necessary to discharge his duty under, or to affect the policy of, this chapter.

B. Operations at the El Paso International Airport are subject to the regulations outlined in Title 14 of this Code. The chief of police or the airport director, or designee(s), shall have the authority to enforce violations of this title occurring at the El Paso International Airport.

C. Animal control officers and/or veterinarians employed by or contracted with the city or designees may carry out and/or enforce the provisions in Section 6.04.400.

(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.04.060 Enforcement.

A. The appropriate enforcement authority may inspect a transportation-for-hire service, vehicle or driver to determine whether the service complies with this chapter, or other applicable law.

B. For any violation of this chapter, the appropriate enforcement authority may issue a citation. As provided in Chapter 1.08 of this Code, it is a misdemeanor offense for any person, firm, corporation, partner, officer or other entity representative, manager, operator or agent to violate, by act or omission, any provision, requirement or prohibition set forth in this chapter.

C. Nothing in this title shall prevent the issuance of a warrant of arrest on the same charge, and trial and conviction thereon as in other cases.

D. Every holder of an operating authority permit shall ensure that its employees, agents and independent contractors are in compliance with provisions of this chapter. It is a violation for an operating authority permit holder to allow an employee, agent or independent contractor to perform services under this chapter when such employee, agent or independent contractor is operating in violation of this chapter.

E. An operating authority whose employee, agent or independent contractor violates a provision of this chapter concurrently violates the same provision and is subject to the same penalty as the employee, agent, or independent contractor.

F. Prosecution for any violation of this chapter does not prevent the use of other enforcement remedies or procedures applicable to the person charged with the conduct involved in the offense.

G. Further, if any provision of this title be held insufficient as the basis of criminal prosecution, the same shall nevertheless be a ground for revocation or suspension of any license or permit issued under this title.

H. A culpable mental state is not required for the commission of an offense under this chapter, unless the provision defining the conduct expressly requires a culpable mental state.

(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.04.070 Operating authority permit—Required.

A. A person may not operate a transportation-for-hire service inside the city without an operating authority permit granted under this chapter.

B. A person may not transport a passenger for hire inside the city unless the person driving the transportation-for-hire vehicle, or another who employs or contracts with the driver, has been granted operating authority under this chapter.

C. It is required for each person to be granted an operating authority permit for each transportation-for-hire service. Each transportation-for-hire service may deploy or operate the types of transportation-for-hire vehicles that are listed on the operating authority permit application.

(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.04.080 Operating authority permit—Term.

An operating authority permit expires one year from the date it is issued.

(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.04.090 Operating authority permit—Application.

A. To obtain an operating authority permit, a person shall make application in the manner prescribed by this section. The applicant must be the person who will own, control, operate and/or manage the proposed transportation-for-hire company. An applicant shall file with the city a verified

application statement and pay the established annual fee. Such application shall be investigated by the chief of police to determine if the applicant meets the qualifications for issuance of a permit. The application shall contain the following:

1. The form of business of the applicant and, if the business is a corporation or association, a copy of the documents establishing the business and the name and mailing address of each person with a twenty percent or greater ownership interest in the business;

2. The verified signature of the applicant;

3. The address of the fixed facilities to be used in the operation, if any, and the address of the applicant's corporate headquarters, along with the name of the person maintained in the State of Texas for notifications, correspondence and service of process;

4. The name of the person designated by the applicant to receive on behalf of the operating authority any future notices sent by the city to the operating authority or service of process, and that person's contact information, including a mailing address, telephone number, and email or other electronic address;

5. When establishing a taxicab company, the applicant must provide a description of the proposed insignia and color scheme for the applicant's taxicab;

6. Documentary evidence that the operating authority and/or its employees or independent contractors who provide transportation-for-hire services are in full compliance with insurance requirements as set forth by the State of Texas. An operating authority shall ensure that employees and/or independent contractors are provided written information about the insurance coverage and liability limits of the insurance provided by the operating authority as well as the potential coverage limitations or exclusions of a driver's personal automobile liability insurance policy when that vehicle is in use in connection with providing transportation services. The insured provisions of the policy must name the city, its officers and employees as additional insureds, and the coverage provisions must provide coverage for any loss or damage that may arise to any person or property by reason of the operation of a transportation-for-hire vehicle when driven by any authorized driver. Notice to the city shall be made within ten calendar days if the policy is cancelled or materially changed; and

7. A statement that the applicant is legally authorized to conduct such business in the United States.

(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.04.100 Operating authority permit—Qualifications.

A. A permit may not be issued if the applicant:

1. Reserved.

2. Operates a place of business that is not in compliance with applicable state laws or local ordinances; or

3. Has performed an act constituting fraud, misrepresentation, or false statement of facts of material consequence in the application; or

4. Does not meet the requirements set forth on the permit application; or

5. Is not legally authorized to work in the United States; or

6. Has any outstanding warrant of arrest; or

7. Is registered in the National Sex Offender Registry database; or

8. Has received two or more convictions for violations, and/or findings of liability, under this chapter or Chapter 14.16 of this Code within the thirty-six-month period preceding the date of application; or

9. Has not paid the established fee; or

10. Is not current in payment of ad valorem taxes or other taxes, as applicable and required.

B. Any changes to the information provided in the operating authority permit application must be reported to the chief of police, in the manner prescribed by the chief of police, within ten business days of the change.

(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.04.110 Drivers—Qualifications.

A. Operating authorities shall obtain a comprehensive national criminal background check on all drivers or operators employed by or contracted with the operating authority. Such background checks shall be conducted through a background check company that is accredited through the National Association of Professional Background Screeners, is Fair Credit Reporting Act compliant, and is acceptable to the city, or through the Texas Department of Public Safety. Such background checks shall include a multi-state/multi-jurisdiction criminal records locator or other similar commercial nationwide database with validation (primary source search); the National Sex Offender Registry database; and a driving history report(s) from all states in which the driver or operator has held a driver's license. The required background check shall be conducted annually on each driver and/or operator.

B. The holders of an operating permit shall submit a list of all drivers employed or under contract with the company to the chief of police every month.

C. An operating authority may not employ or contract with a person as a driver who:

1. Has performed an act constituting fraud, misrepresentation, or false statement of facts of material consequence in the application; or

2. Is not at least eighteen years of age; or

3. Does not hold a valid driver's license that meets the requirements of V.T.C.A., Transportation Code, Chapter 521; or

4. Does not possess proof of current and valid Texas registration for the motor vehicle(s) to be used to provide services, or, for vehicles registered outside the State of Texas, does not hold a current and valid Texas Vehicle Inspection Report indicating the vehicle has passed a safety and emission inspection; or

5. Does not possess proof of automobile liability insurance for the motor vehicle(s) or other mode(s) of transportation to be used to provide services; or

6. Is not legally authorized to work in the United States; or

7. Is afflicted with a physical or mental disease or disability that is likely to prevent the applicant from exercising ordinary and reasonable control over a motor vehicle or alternative transportation-for-hire vehicle, or that is likely to otherwise endanger the public health or safety; or

8. Has been convicted, within the past seven years, of driving under the influence of drugs or alcohol, fraud, sexual offenses, use of a motor vehicle to commit a felony, a crime involving property damage, and/or class B misdemeanor or higher; or

9. Has been convicted of more than three moving violations arising out of separate incidents in the prior three-year period, or has been involved in more than one automobile accident in which it could be reasonably determined that the applicant was at fault within any twelve-month period during the twenty-four months preceding the date of application; or

10. Has had a driver's license issued by any state suspended during the five years preceding the date of application; or

11. Has had a driver's license issued by any state revoked or canceled; or

12. Has an outstanding warrant of arrest; or

13. Is a match in the National Sex Offender Registry database; or

14. Has been convicted two or more times of violations and/or findings of liability under this chapter or Chapter 14.16 of this Code within the thirty-six-month period preceding the date of application; or

15. Is not current in payment of ad valorem taxes or other taxes, as applicable and required.

(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.04.120 Operating authority permit—Fees.

No operating authority permit shall be issued or in effect unless the established annual fee has been paid. Such fee is adopted on Schedule C through the city's annual budget process.

(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.04.130 Operating authority permit—Denial; suspension; revocation.

The chief of police may deny an operating authority permit, whether an initial issuance of a permit or a renewal, if the chief of police determines that the operating authority permit applicant failed to perform the required acts in the chapter or failed to meet the qualifications set out in this chapter.

The chief of police shall have the authority to suspend or revoke an operating authority permit under the grounds set forth in this chapter.

A. The chief of police may suspend an operating authority permit if the permit holder:

1. Employs or contracts with a driver not qualified pursuant to the provisions of this chapter; or

2. Allows operation of a vehicle in the course of business that is not qualified pursuant to this chapter.

B. The chief of police may revoke an operating authority permit if the operating authority permit holder:

1. Made a false statement of material fact in the application for an operating authority permit; or

2. Submitted false or fraudulent documents during the application process; or

3. Failed to maintain appropriate insurance policies; or

4. No longer meets all qualifications for issuance of an operating authority permit; or

5. Engaged in conduct reasonably determined to be detrimental to public safety.

(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.04.140 Operating authority permit and taxicab zone permit denial, suspension, revocation—Appeal.

A. The chief of police shall notify an applicant for an operating authority permit or a taxicab zone permit of a denial, suspension or revocation of a permit. Such notice shall be made in writing via certified U.S. mail. The notification shall include a statement as to the reason(s) for denial, suspension or revocation and the option and process for appeal, including a notice provision in forming the applicant of his or her right to appeal the decision of the chief of police by submitting a written notice requesting an administrative hearing before a municipal associate judge. The applicant, referred to as the respondent for purposes of the appeal, will submit the written statement to the chief of police not later than the fifteenth city business day after the date of the written notice of denial, suspension or revocation of a permit. The respondent's written statement requesting the appeal shall clearly state why the respondent contends that there is not a valid basis for the denial, suspension or revocation of a permit.

B. During the pendency of an appeal for a denial, suspension or revocation of an operating authority permit or taxicab zone permit, the action by the chief of police shall remain in effect. However, if the denial is for the respondent's renewal application for an operating authority permit, and such denial is not for a reason that could result in the suspension or revocation of that permit pursuant to Section 6.04.130, the existing permit will remain valid and in effect during the pendency of the appeal and until such time as the decision of the municipal associate judge becomes final.

C. If the respondent submits a written statement appealing the denial, suspension or revocation of a permit, the chief of police will immediately contact the city attorney's office in order to coordinate the retention of a municipal associate judge and to schedule a hearing. The notice of the hearing will specify a hearing date, not less than fifteen city business days nor more than thirty city business days after the date the applicant or permit holder files the written notice requesting an administrative hearing. The municipal associate judge will conduct a hearing on the denial, suspension or revocation of the permit. The hearing may be continued to a sooner or later date by agreement of the parties, and with the municipal asso-

ciate judge's approval, or upon the finding of good cause by the municipal associate judge for the granting of an earlier or later hearing date.

D. At the hearing, the respondent will have the opportunity to present all of the respondent's arguments and to be represented by counsel at respondent's expense, present evidence and witnesses on his or her behalf, and cross-examine any of the witnesses for the chief of police. The chief of police, who may also be represented by counsel, bears the burden of proving the grounds for denying, suspending or revoking the permit by a preponderance of the evidence. The hearing will take no longer than one business day, unless extended by agreement of the parties or at the request of either party, and with approval of the municipal associate judge, to meet the requirements of due process and the proper administration of justice.

E. The municipal associate judge will issue a written decision, including findings of fact and conclusions of law, to the respondent within five city business days from the completion of the hearing. The municipal associate judge's decision is final.

F. If the decision is to affirm denial, suspension or revocation of a permit, the effective date of the denial, suspension or revocation remains the date of the action by the chief of police. If the municipal associate judge's decision finds that no grounds exist for the denial of a permit, the municipal associate judge will, contemporaneously with the issuance of the decision, order the chief of police to immediately withdraw the denial of the permit and notify the respondent in writing by certified mail of such action. If the respondent is not yet permitted, the license official will contemporaneously therewith issue the permit to the applicant. If the municipal associate judge's decision finds that no grounds exist for suspension or revocation of a permit, the municipal associate judge will, contemporaneously with the issuance of the decision, order the chief of police to immediately withdraw the suspension or revocation of the permit and notify the respondent in writing by certified U.S. mail of such action.

G. If a person whose operating authority permit or taxicab zone permit is suspended or revoked and the person opts to not appeal, or the suspension or revocation is affirmed by the municipal associate judge, the person is not eligible to apply for a subsequent permit for a period of three years from the date of suspension or revocation. Such application shall be considered a new application and shall be processed accordingly.
(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019; Ord. No. 019642, § 1, 6-11-2024)

6.04.150 Records and information—Required.

A. An operating authority shall maintain the following:

1. Records of each trip including the identities of the driver and passenger. Such records shall be retained for one year from the date of each trip.

2. Records of drivers, whether employees or independent contractors, for at least one year after the driver's employment was terminated for any reason or the driver's independent contractor relationship terminated. Such records shall include documented proof that each driver meets the qualifications set forth in this chapter.

B. Requests for information shall be handled as follows:

1. Any law enforcement officer investigating a criminal case may request information on drivers and/or vehicles from an operating authority in situations where a person is in danger of bodily injury, serious bodily injury and/or death. The operating authority shall respond immediately and such response shall include all information relevant to the investigation.

2. Upon receipt of a duly issued subpoena, court order or warrant relating to the investigation of a criminal matter, the operating authority shall furnish the requested records to the appropriate person named in the subpoena, court order or warrant within the time frame specified.

3. In the event a specific and credible complaint is received against a driver, the city shall be provided access to records necessary to investigate

and/or resolve the complaint. Such access shall be provided in the City of El Paso. Identities of specific drivers or passengers may be redacted unless such identification of a driver or rider is directly related to the complaint.
(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.04.160 Audit.

To allow the City of El Paso to verify compliance with this chapter, an operating authority shall allow the city to inspect a randomly selected sample of records required by this chapter. Both parties shall mutually agree on the method or manner used to select the sample. Audits shall be conducted in the city and shall occur no more frequently than once per calendar year. An operating authority may redact information that may identify specific drivers and/or passengers.
(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.04.170 Permit—Display.

A holder of an operating authority permit shall allow the appropriate enforcement authority or designee to examine the permit upon request.
(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.04.180 Two-way mode of communication; required.

All drivers shall have an operable means of two-way communication readily available when engaged in providing transportation-for-hire services.
(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.04.190 Carrying passengers by most direct route.

A driver shall carry a passenger to his destination by the most direct and expeditious route available unless otherwise directed by the passenger.
(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.04.200 Solicitation; street hails—Prohibited.

A. A driver may not solicit passengers:

1. By word, sound or gesture while driving a transportation-for-hire vehicle on any public street, or while the same is parked on such street, or while the person so soliciting is on any such street or sidewalk; or

2. By paying an employee of another business to solicit passengers or to give preferential treatment in directing passengers to the driver's transportation-for-hire vehicle.

B. A person may not hail a taxicab. Requests for taxicab transportation shall be made through a digital network or dispatch center.
(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.04.210 Conduct of drivers.

While on duty the driver shall:

1. Conduct himself in a reasonable, prudent and courteous manner;

2. Not consume alcoholic beverages, controlled substances, or other substances, which could adversely affect his ability to drive a motor vehicle;

3. Not interfere with the chief of police in the performance of the chief's transportation for hire enforcement duties; and

4. Comply with all lawful orders of the chief of police issued in the performance of the chiefs transportation for hire enforcement duties.

5. Maintain a well-groomed, professional appearance. All clothing must be clean and free of rips or tears.
(Ord. No. 18894, § 1, 1-8-2019)

6.04.220 Accessibility; non-discrimination.

A. An operating authority shall adopt policies regarding non-discrimination and accessibility.

B. An operating authority shall provide this policy along with procedures to report complaints on the company website of the operating authority.

C. Upon any passenger or potential passenger requesting a wheelchair accessible vehicle, or vehicle capable of accommodating other mobility assistance devices/equipment, an operating authority, employee and/or independent contractor shall provide an appropriate vehicle or refer the requesting passenger to an alternate company that is capable of accommodating the request. Such re-

ferrals shall be made in a way that does not unreasonably delay the provision of service to the requesting passenger(s).

D. Upon any passenger or potential passenger requesting an accommodation for a service animal, an operating authority, employee and/or independent contractor shall reasonably accommodate such service animal. If a service animal cannot be reasonably accommodated, an operating authority, employee and/or independent contractor shall provide an appropriate vehicle capable of accommodating the request or refer the requesting passenger to an alternate company that is capable of accommodating the request. Such referrals shall be made in a way that does not unreasonably delay the provision of service to the requesting passenger(s).

E. Higher fares or additional fees shall not be charged to passengers who require a wheelchair or other mobility assistance device/equipment or service animal accommodation.

F. No operating authority or driver shall discriminate on the basis of race, color, national origin, religious belief or affiliation, sex, disability, age, sexual orientation, or gender identity with respect to passengers and potential passengers.

G. No operating authority or driver shall discriminate based on passenger or potential passenger pick up or drop off location in relation to subsection D other than for reasons of geographic distance or route limitations imposed by this chapter.

H. It is a violation for an operating authority to fail to perform the requirements in subsections A and B.

I. It is a violation for operating authorities and/or employees and/or independent contractors to fail to perform the requirements of subsections C and D.

J. It is a violation for an operating authority, an employee and/or an independent contractor to perform an act in violation of the acts prohibited in subsections E—G.

(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.04.230 Zero tolerance for alcohol or drug abuse.

A. An operating authority shall implement a zero tolerance policy regarding the use of any drug or alcohol by a transportation-for-hire driver while providing transportation services. This policy along with procedures to report complaints shall be clearly provided on the company website of the operating authority. If the operating authority does not have a website, the same information shall be made readily available to passengers by the transportation-for hire driver.

B. Upon receipt of a complaint alleging a violation of such policy, the operating authority shall suspend the employee or independent contractor and shall conduct an investigation. If the investigation results in findings that the employee or independent contractor violated the policy, the operating authority shall immediately and permanently remove the employee from providing transportation services.

(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.04.240 Permit required; validity of permit; offense.

A person commits an offense if he:

A. Operates a transportation-for-hire company with an expired, revoked or suspended operating authority permit;

B. Operates a transportation-for-hire company without an operating authority permit;

C. Forges, alters, or counterfeits, or causes to be forged, altered, or counterfeited, an operating authority permit required by this chapter; or

D. Possesses or uses a forged, altered, or counterfeited operating authority permit required by this chapter.

(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

Article II. Taxicabs

6.04.250 Established taxicab zones—Permit required.

A. Taxicab zones at locations other than the airport:

1. Taxicab zones are designated by the city pursuant to Title 12 of this Code.

2. Only taxicabs may use the taxicab zones.

3. Only upon approval of the application and payment of the established non-refundable fee shall a taxicab zone permit be issued.

4. Taxicab zone permits expire one year from the date issued.

5. Drivers shall not interfere with the orderly progression of taxicabs from the rear to the front of the taxicab zone.

6. Drivers shall not enter a taxicab zone unless there is a vacant space.

7. Drivers shall not interfere with a taxicab entering a taxicab zone in which there is a vacant space.

8. Drivers shall not leave the immediate vicinity of the taxicab zone when parked except to provide reasonable assistance to a passenger upon being engaged to transport that passenger.

9. Drivers shall not occupy a space in a taxicab zone unless the taxicab is available for hire.

10. Drivers shall not perform maintenance or repairs to a vehicle while occupying a space within a taxicab zone.

B. The chief of police may deny renewal, suspend or revoke a taxicab zone permit issued for locations other than the airport if a driver has received two or more citations for violations of subsection A in a twelve-month period. Drivers may appeal such actions in accordance with Section 6.04.140.

C. Taxicab zone at the El Paso International Airport:

1. Unless specifically exempted under this chapter, a person shall not operate a transportation-for-hire service at the airport for the transport of persons between the airport and locations within or outside the city without a permit granted under this section.

2. A person shall not advertise, nor cause to be advertised, the operation of a transportation-for-hire service at the airport without having a valid permit granted under this section to provide such service when the advertisement is reasonably calculated to be seen by persons seeking transportation-for-hire services at the airport.

3. A person shall not operate a transportation-for-hire vehicle at the airport without a valid permit issued under this section.

4. Only upon approval of the application and payment of the established non-refundable fee shall a taxicab zone permit be issued.

5. Operation of a transportation-for-hire service and operation of a transportation-for-hire vehicle at the airport are subject to additional regulations as set forth in Chapter 14.16.

6. Taxicab zone permits expire one year from the date issued.

(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.04.260 Taximeters required—Specifications.

If an operating authority elects to operate as a traditional taxicab with no digital network or fare calculator, vehicles shall be equipped with taximeters and the following regulations apply:

A. The taximeter shall accurately show:

1. The legal fare for each trip;

2. The minimum fare;

3. When the distance allowed for such minimum fare shall have been traveled; and

4. The total fare as the same increases with each additional fraction of a mile. If any charge is incurred for waiting time, such charge shall be included in the total shown.

B. The taximeter shall be installed and operated per manufacturer's instructions.

C. The taximeter shall be deemed to show accurately the distance traveled if the error, either above or below the correct distance, is not more than one hundred feet to the mile.
(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.04.270 Taximeter—Inspections.

After installation, the taximeter shall at all reasonable times be subject to inspection by the chief of police in accordance with the standards set forth in this chapter, and if the taximeter does not comply with the requirements of this chapter, the taxicab shall be taken out of service until the taximeter is properly adjusted, repaired or replaced.
(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.04.280 Taximeter—Operation.

A. The taximeter shall be so installed, and when necessary, lighted as to be plainly visible to all passengers. The meter shall be placed in the earning position when the taxicab is in use by a passenger or passengers, but shall not be so placed at any other time so as to charge any passenger with waiting time or mileage for which he should not be charged.

B. The taximeter shall be deemed to be in use by the passenger from the time he enters the same, or, if the taxicab is responding to a call, from the time the taxicab arrives at the place where the passenger is to be picked up and he is notified of such arrival; and ends when the passenger leaves the taxicab, unless he requests the driver to wait.

C. The taximeter shall be operated in the earning position whenever the taxicab is being operated with any person other than the driver in the cab, except when flat rates as provided in this chapter are in effect.

D. It is a violation to activate a taximeter, or to fail to activate a taximeter, as required by this chapter.
(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.04.290 Rates schedules—Regulations.

All transportation-for-hire vehicles operating with a taximeter and/or through a dispatch center may charge minimum fares as follows:

A. A minimum trip fee of five dollars for any trip less than one mile in distance that does not originate at the airport; and

B. A minimum trip fee of ten dollars for trips originating at the airport, or the rate on the taximeter, whichever is higher.
(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.04.300 Fare rates displayed.

All taxicab vehicles shall have a card displayed with a color, font and size that is clearly legible from a distance of three feet outside the vehicle, and from the rearmost seat of the vehicle, which shall include the following:

A. A schedule listing fare costs;

B. The operating authority's contact information;

C. A statement that wheelchair accessible vehicles are available upon request, or contact information for a provider of wheelchair-accessible services; and

D. Information on how to report complaints to the operating authority and the city.
(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.04.310 Receipts—Required.

An operating authority shall provide the payer of a fare with a legible receipt at the time of payment. Such receipt shall be in hard copy form, or in electronic format that can be sent to the passenger electronically by e-mail address or text message. The receipt must contain the following information:

A. The fare rate;

B. The total fare;

C. The trip distance (if fare based in whole or in part on distance);

D. The duration of the trip in minutes (if fare based in whole or in part on time);

E. The name of the operating authority under which the driver was operating at the time of the ride; and

F. The driver's first name or vehicle number.
(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.04.320 Vehicle identification—Requirements.

All taxicabs shall have the vehicle number, company name and telephone number of the taxicab service painted or permanently affixed on both sides of the vehicle. Magnetic signs are not allowed. Letters and numbers used shall be color contrasted against the vehicle and be of sufficient size and font to be easily visible at a distance of at least thirty feet.
(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.04.330 Vehicle requirements and inspections.

A. The vehicle shall be kept in a clean condition internally and externally, free of foreign matter (such as trash, debris, and clutter), and free of offensive odors while in service. No taxicab shall be equipped with shades, curtains or any other vision-obstructing devices.

B. There shall be no litter in the vehicle or trunk, on floor mats, and the upholstery. Floor mats shall be kept clean and without holes or large wear spots.

C. The vehicle shall be free from damaged fenders and body, defective paint and other conditions making taxicabs unsightly.

D. Vehicles must be kept in the manner required by Texas Transportation Code Section 547.
(Ord. No. 18894, § 1, 1-8-2019)

6.04.340 Vehicle color scheme and distinctive markings.

A. A holder of an operating permit shall develop a design of a color scheme and/or distinctive markings for taxicabs operating under its authority. The operating permit holder shall submit the design to the chief of police for approval to ensure that the design is not likely to cause confusion with other taxicabs operated by a different taxicab service. The color scheme design and/or distinctive markings must be reasonably suited for taxicab use in accordance with generally prevalent practices of the taxicab business.

B. After a design is approved by the chief of police, the holder shall submit to the chief of police a color photograph of a completely equipped taxicab using the approved design.

C. The holder shall use only the approved design, as depicted in the submitted photograph, for taxicabs operating under its permit, unless written approval of a change is obtained from the chief of police.
(Ord. No. 18894, § 1, 1-8-2019)

Article III. Alternative Transportation-for-Hire Vehicles

6.04.350 Alternative transportation-for-hire vehicles—Applicable regulations.

Alternative transportation-for-hire vehicles may only offer services in accordance with a preapproved route, with fixed pickup and destination points, that must be current and kept on file with the city. Such routes shall be submitted with each application submitted for an operating authority permit.
(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.04.360 Pedi-cabs—Safety equipment and specifications.

A. In addition to any state law requirements, an operating authority shall ensure each pedi-cab is equipped and operates as follows:

1. At least one white headlight visible from a distance of at least five hundred feet;

2. Two red taillights visible from a distance of at least five hundred feet;

3. A reliable braking system;

4. Sufficient rubber and treading on all wheels;

5. A slow-moving vehicle sign attached to the rear of the vehicle;

6. A red reflector on the rear of the pedi-cab;

7. The distance between each pedi-cab wheel must remain constant while turning; and

8. Floorboards must have non-skid contact surfaces without holes.

(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.04.370 Pedi-cab operation—Restrictions.

In addition to complying with all applicable traffic laws, a pedi-cab driver may not:

A. Operate a pedi-cab on any street, highway or parkway where the posted speed limit exceeds forty-five miles per hour, but may cross a road or street at an intersection where the road or street has a posted speed limit of more than forty-five miles per hour;

B. Operate a pedi-cab on any sidewalk, median, bike trail or hike trail; or

C. Permit or allow a passenger to ride in or on a pedi-cab in such a position that the driver's vision forward, to the side or the rear is blocked.

(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.04.380 Neighborhood electric vehicle (NEV) and low speed vehicle (LSV)—Safety equipment and specifications.

In addition to any state law requirements, an operating authority shall ensure each NEV or LSV is equipped as follows:

A. Two white headlights visible from a distance of at least five hundred feet;

B. Two red taillights visible from a distance of at least five hundred feet;

C. Front and rear turn signal lights;

D. At least two stop lights;

E. A slow-moving vehicle sign attached to the rear of the vehicle;

F. Red reflectors visible to the rear and sides;

G. An exterior mirror mounted on the driver's side of the vehicle, and either an exterior mirror mounted on the passenger's side of the vehicle or an interior mirror;

H. A parking brake;

I. A glazed windshield; and

J. Seatbelts at all designated seating positions.

(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.04.390 NEV and LSV operation—Restrictions.

In addition to complying with all applicable traffic laws, an NEV and LSV driver may not:

A. Operate on any street, highway or parkway where the posted speed limit exceeds forty-five miles per hour, but may cross a road or street at an intersection where the road or street has a posted speed limit of more than forty-five miles per hour;

B. Operate on a street or highway at a speed that exceeds the lesser of:

1. The posted speed limit, or

2. Thirty-five miles per hour;

C. Operate on any sidewalk, median, bike trail or hike trail; or

D. Permit or allow a passenger to ride in or on an NEV or LSV vehicle in such a position that the driver's vision forward, to the side or the rear is blocked.

(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.04.400 Care of horses.

A. Operating authorities shall ensure that humane care is given to horses at all times and that appropriate and sufficient food and fresh, potable drinking water are available for each horse and that, while working, each horse is permitted to eat at reasonable intervals and have access to drinking water as necessary. No horse shall be worked for more than eight hours in any continuous twenty-

four-hour period. No horse shall be worked if there are signs of illness, injury, or exhaustion, or if horse shoes are missing, ill-fitting or broken.

B. Operating authorities shall not allow a horse to be worked on a public highway, path or street during conditions which are determined by appropriate enforcement authority or his designee to pose a threat to the health, safety or well-being of the horse, passengers, or general public. If such conditions develop while a horse is being worked, however, said horse shall be returned, without delay, to its stable by the most direct route, and, if the threat posed is an immediate one, then the return of the horse to its stable shall be by horse trailer.

C. Operating authorities shall ensure that horses are provided the below listed medical treatments and vaccinations by a licensed veterinarian at the listed intervals, or at other intervals deemed appropriate by a licensed veterinarian. Operating authorities shall provide proof of such medical treatment and vaccinations upon submitting an application for an operating authority permit and/or upon request of the appropriate enforcement authority.

1. Venezuelan, Western, Eastern Encephalomyelitis—Annually;

2. Equine Influenza—Annually;

3. Rabies—Annually;

4. Eastern/Western Tetanus and West Nile Virus—Annually;

5. Equine Rhino/Flu—Annually;

6. Coggins Certificate (Equine Infectious Anemia)—Annually; and

7. Treatment for Internal Parasites—Quarterly.

D. Reserved.

E. Operating authorities shall ensure that horses are kept clean, especially those areas in contact with the harness or other tack. Additionally, horses must receive appropriate and necessary hoof trimming and shoe resetting every six to eight weeks. The operating authority must maintain records of all trimming and shoeing, which shall be made available to the chief of police upon request.

F. Operating authorities shall have each horse examined by a veterinarian within thirty days prior to issuance of a new or renewal permit for the horse to be used in a transportation-for-hire service. The veterinarian shall certify that the horse is in a sound and fit condition to perform the task of drawing a carriage, meets the requirements set forth in subsection C., and is properly shod so as to provide adequate protection to a horse which will travel on paved roads.

G. A person commits an offense if the person allows the continued use of a horse which is unfit for use as defined in this section.

H. Operators of horse and carriage transportation-for-hire vehicles shall ensure that any excrement is immediately removed from any public place and disposed of properly.

I. All stables where a horse used in a transportation-for-hire service is kept must be located within the geographic boundaries of the city and must comply with the requirements of Title 7 of this Code. Upon request at any reasonable time and after giving written notice to the operating authority, the operating authority shall make the stable available for inspection by the appropriate enforcement authority. If the inspection reveals a lack of humane care, unsafe or unsanitary conditions which may affect the health of the horse or a violation of Title 7, the appropriate enforcement authority may take action as authorized under Title 7 of this Code. Failure to bring the stable into compliance as ordered is prohibited and shall be cause for the revocation of the operating authority permit by the chief of police.

(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

Article IV. Sightseeing, Charter, Limousine and Shuttle Operations

6.04.410 Services provided.

Sightseeing, charter, limousine, and shuttle operations may be provided as transportation-for-

hire services by appointment or based on pre-established schedules as evidenced by a physical or digital logbook noting the passenger name, pick-up location, date, and time.
(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.04.420 Vehicle identification—Requirements.

Shuttles shall have the vehicle number, company name and telephone number of the vehicle for hire service painted or permanently affixed on both sides of the vehicle. Magnetic signs are not allowed. Letters and numbers used shall be color contrasted against the vehicle and be of sufficient size and font to be easily visible at a distance of at least thirty feet.
(Ord. No. 18894, § 1, 1-8-2019)

6.04.430 Rate information.

Potential passengers shall be provided the rate information and total cost estimates before charges are incurred.
(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.04.440 Receipt required.

An operating authority shall provide the passenger with a legible receipt at the time of payment. Such receipt shall be in hard copy form, or in electronic format that is caused to be sent to the passenger electronically by e-mail address or text message.
(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

Article V. International Transportation-for-Hire

6.04.450 International transportation-for-hire vehicle permit—Required.

No vehicle shall be operated in the city as an international transportation-for-hire vehicle unless the vehicle has been issued a vehicle permit.
(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.04.460 International transportation-for-hire vehicle permit—Term.

All international transportation-for-hire permits shall expire twelve months from date of issuance.
(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.04.470 International transportation-for-hire vehicle permit—Application.

A. To obtain a vehicle permit to operate as an international transportation-for-hire vehicle, a person shall submit an application and pay the established non-refundable fee. The following documents shall be submitted with the application:

1. *Tarjeta de circulación vehicular* which includes vehicle make, model, plates and vehicle identification number;

2. A current certificate indicating the vehicle has passed a Texas state inspection;

3. Current vehicle registration from a state in Mexico; and

4. Proof of an appropriate insurance policy equivalent to that required by the Texas Insurance Code and/or other Texas statutes that is issued by a solvent company and that provides coverage in the city limits of El Paso.

B. Only vehicles that meet the definition of a motor vehicle pursuant to V.T.C.A., Transportation Code, § 541.201 may be operated as international transportation-for-hire vehicles.
(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.04.480 International transportation-for-hire—Operational limitations.

Authorized international transportation vehicles have the following limitations:

A. Passengers may be dropped off anywhere in the El Paso city limits, or the vehicle may pass through the El Paso city limits;

B. No passengers may be solicited or picked up, nor may the international transportation-for-hire vehicle allow solicitation or hailing by potential passengers, in the El Paso city limits;

C. Passengers may only be dropped off at one location per passenger and interim stops before the final destination are not allowed;

D. Once passengers have been dropped off, the driver shall depart the El Paso city limits without unreasonable delay using the most direct route, or if the vehicle had originally passed through the city limits, the vehicle may enter the city limits again to return to the desired location in Mexico using the most direct route; and

E. International transportation-for-hire vehicles may not operate in the city without a current identification sticker on display.

(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

Chapter 6.36

DRIVERLESS AUTOMOBILES*

Sections:

6.36.010 Driverless automobiles—Definitions.

6.36.020 Driverless automobile operation operating permit—Required.

6.36.030 Driverless automobile operation operating permit—Term.

6.36.040 Driverless automobile operation operating permit—Application.

6.36.050 Driverless automobile operation public liability insurance—Requirements.

6.36.060 Driverless automobile operation operating permit—Qualifications.

6.36.070 Driverless automobile operation operating permit—Display.

6.36.080 Driverless automobile operation operating permit—Changes to information.

6.36.090 Driverless automobile operation operating permit—Denial; suspension; revocation.

6.36.100 Receipt for payment—Required.

6.36.110 Payment of taxes.

6.36.120 Restrictions on renting.

6.36.130 Contracting requirements.

6.36.010 Driverless automobiles—Definitions.

The definition of a term in this chapter applies to each grammatical variation of the term unless the context specifies a different definition.

A. "Driverless automobile" means any passenger automobile rented or offered for rent to the public or to any member of the public, without services of a driver, except those automobiles not regularly available for rental for less than one month.

B. "Good and safe mechanical condition" means such condition that the automobile may be reasonably expected to perform the services for which it is rented to the customer, without the necessity for repair while on such service if operated with ordinary skill and care; and equipped with safety devices required by law, in good working order.

(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.36.020 Driverless automobile operation operating permit—Required.

No person shall operate a driverless automobile operation, franchise or business inside the city without an operating permit granted under this chapter.

(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.36.030 Driverless automobile operation operating permit—Term.

An operating permit expires one year from the date it is issued.

(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.36.040 Driverless automobile operation operating permit—Application.

An application for a permit or renewal of a permit under this chapter shall be submitted along with the established non-refundable fee. The application shall be completed in full by the applicant and will contain as attached documents the following items of information:

A. Documented proof of ownership by the individual, company or corporation requesting such permit and date business was established;

B. Name, address and phone number of the owner or principal officer of the business; and

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***Editor's note**—Ord. No. 18894, § 1, adopted Jan. 8, 2019, amended chapter 6.36 in its entirety to read as herein set out. The historical notation has been retained with the amended provisions for reference purposes.

Note—See editor's note to Title 6.

C. A certificate of insurance showing compliance with the applicable provisions of this chapter.
(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.36.050 Driverless automobile operation public liability insurance—Requirements.

A. No permit shall be issued under this chapter unless the applicant provides proof of the proper liability insurance coverage as required by state law and this chapter.

B. The policy shall contain a provision that it may not be cancelled, revoked or annulled by the insurer without giving ten days written notice thereof to the chief of police. The permit holder shall not surrender or release such policy without filing in lieu thereof another policy complying with the requirements of this section, or surrendering the issued permit.
(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.36.060 Driverless automobile operation operating permit—Qualifications.

An applicant for a driverless automobile operating permit may be denied issuance of a permit under the following conditions:

A. The applicant has been convicted of a felony;

B. The applicant has been convicted of any misdemeanor involving moral turpitude committed in connection with the licensed business or a similar business;

C. The applicant has been convicted of an offense involving fraud or theft;

D. The applicant has any outstanding warrant of arrest;

E. The applicant is registered in the National Sex Offender Registry database;

F. The applicant performed an act constituting fraud, misrepresentation, or false statement of facts of material consequence in the application; or

G. There are two or more violations of this chapter within the twelve-month period immediately preceding submittal of the current application, and such violations resulted in a citation or arrest of the applicant, or any employee or independent contractor of the applicant, or a combination of citation or arrest on the part of both the applicant and the employee or independent contractor of the applicant.

H. Applicants are required to obtain a comprehensive background check through a background check company that is accredited through the National Association of Professional Background Screeners, is Fair Credit Reporting Act compliant, and is acceptable to the city, or the Texas Department of Public Safety, and to submit, or cause to be submitted, background check results with the application form.
(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.36.070 Driverless automobile operation operating permit—Display.

The operating permit shall be kept posted in a conspicuous place at the location at which the business is conducted.
(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.36.080 Driverless automobile operation operating permit—Changes to information.

Any changes to the information provided in the operating permit application must be reported to the chief of police, in the manner prescribed by the chief of police, within ten business days of the change.
(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.36.090 Driverless automobile operation operating permit—Denial; suspension; revocation.

A. The chief of police may deny issuance of a permit under the following conditions:

1. The applicant for a new or renewal permit fails to meet the required qualifications; or

2. The applicant fails to submit required documentation with the application.

B. The chief of police may suspend a permit if the permit holder:

1. Has failed to pay any final judgment of a court of competent jurisdiction against him on a claim arising out of the conduct of the licensed business; or

2. Has habitually violated any provision of this chapter, whether convicted in court or not. Habitually violated means that a permit holder has been cited for the same violation at least twice and there has been no effort on the part of the permit holder to correct the problem or become compliant with this chapter.

C. The chief of police may revoke a permit if the permit holder:

1. Has violated Title 14 of this Code in a matter related to the licensed business; or

2. No longer meets the qualifications to be issued an operating permit under this chapter.

D. An applicant or permit holder may appeal a denial, suspension or revocation of a permit per Section 6.04.140 of this title.

(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.36.100 Receipt for payment—Required.

The operating permit holder or employee or independent contractor shall issue a receipt to any person paying for the hire of any driverless automobile.

(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.36.110 Payment of taxes.

Permit holders shall promptly fully pay all ad valorem taxes levied upon any property used in the licensed business.

(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.36.120 Restrictions on renting.

No person shall rent any driverless automobile to any person who does not hold a driver's license, or who is intoxicated, or who is obviously unable to drive safely because of illness or any other reason.

(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

6.36.130 Contracting requirements.

A. Permit holders shall set out in the body of its contract with the lessee of any driverless automobile that the lessee shall be liable for payment of fines due to the issuance of a citation for any parking or traffic violation while the automobile is under the control of or in operation by the lessee.

B. The contract between the permit holder and the lessee of any driverless automobile shall contain the lessee's name, address, driver's license number and the state from which such license was issued. This information shall be made available upon request to the city or its duly authorized and appointed representative if no action has been taken by the lessee within fifteen days after the parking citation was issued to the lessee. Traffic citations shall be subject to established state law and/or city-established ordinance rules and procedures.

(Ord. No. 18546, § 1, 8-9-2016; Ord. No. 18894, § 1, 1-8-2019)

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Title 7

ANIMALS*

Chapters:

7.04	**Definitions and Administration**
7.08	**Animals Generally**
7.12	**Dogs and Cats**
7.14	**Animal Sales, Breeding and Shows**
7.15	**Grooming Services**
7.16	**Impoundment**
7.20	**Quarantine**
7.24	**Livestock and Other Animals**
7.28	**Reserved**
7.30	**Reserved**
7.50	**Department of Animal Services**

***Note——Prior history:** Ords. 8465, 8513, 8550, 8789, 8996, 9019, 9173, 9571, 10161, 10436, 10597, 10701, 10726, 12121-12124, 12299, 13564, 17428; prior code §§ 5-1—5-33.

Chapter 7.04

DEFINITIONS AND ADMINISTRATION

Sections:

7.04.010 Definitions.

7.04.020 Standards of care.

7.04.030 Enforcement—Right of entry—Interference with officer.

7.04.040 Recordkeeping—Annual audits required.

7.04.050 Animal bites—Reporting requirements.

7.04.060 Zoonotic disease reporting required.

7.04.070 Veterinary care of city-owned animals.

7.04.080 Violation—Penalty.

7.04.090 Permit applications.

7.04.100 Appeals.

7.04.110 Reports to council.

7.04.120 Severability.

7.04.010 Definitions.

A. "Abandon" means to give up with the intent of never again claiming a right or interest in.

B. "Animal" means every living dumb creature.

C. "Animal establishment" means any established place conducting business dealing with animals for a profit including, but not limited to, kenneling, showing and exhibiting animals and excluding veterinary offices, clinics, hospitals or emergency rooms. An individual providing care for an animal in the absence of its owner, in the owner's home, will not be considered an "animal establishment."

D. "Animal training course" means a course of study approved by the Director and designed to provide basic instruction on reasonable precautions to ensure animals are not abused, mistreated, neglected or endangered or in any manner made to suffer during grooming. The animal training course shall include instruction on cardiopulmonary resuscitation (CPR) for dogs.

E. "Animal welfare organization" means a tax-exempt nonprofit organization founded for the purpose of providing humane sanctuary, a shelter for abandoned or unwanted animals, or recognized animal rescue organization, that is registered and permitted by the department pursuant to Sections 7.14.010 and 7.14.090 of this Code.

F. "Bite" or "scratch" means any abrasion, scratch, puncture, tear or piercing of the skin actually or suspected of being caused by an animal.

G. "Bovine" is used in its general sense and includes all domesticated bovine regardless of age, sex or breed.

H. "Canvassing" means periodic verification of compliance with this title by the city utilizing personnel trained to go door-to-door within the incorporated city limits.

I. "Center" means any premises designated by the city for the purpose of impounding and caring for animals coming into the custody of the department of animal services and in which the program is housed.

J. "City owned" means any animal that has passed its respective disposition period, as set forth in this title, and that is in the possession or under the control of the department, or an animal that has not yet passed its disposition date as set forth in this title, but that is within the department's control.

K. "Collar" means a band of nylon, leather or similar material, chain, harness or other suitable device specifically designed to be used by the type of animal wearing the collar around its neck and to which a current rabies vaccination and registration tag can be affixed.

L. "Dangerous dog" means a dog that:

1. Makes an unprovoked attack on a person that causes bodily injury and occurs in a place other than an enclosure in which the dog was being kept; or

2. Commits unprovoked acts in a place other than an enclosure in which the dog was being kept and those acts cause a person to reasonably believe that the dog will attack and cause bodily injury to that person.

M. "Dangerous wild animal" includes but is not limited to:

1. Lion;
2. Tiger;
3. Ocelot;
4. Cougar;
5. Leopard;
6. Cheetah;
7. Jaguar;
8. Bobcat;
9. Lynx;
10. Serval;
11. Caracal;
12. Hyena;
13. Bear;
14. Coyote;
15. Jackal;
16. Baboon;
17. Chimpanzee;
18. Orangutan;
19. Gorilla;
20. Wolf; or
21. Any hybrid of an animal listed in this definition.

N. "Director" means the director of the department of animal services, or designee.

O. "Department" means the department of animal services.

P. "Dog" or "cat", unless otherwise specifically set forth with an age limit, shall include a "puppy" or "kitten" and the terms are interchangeable.

Q. "Ear tipped cat" means a cat upon which a surgical process is performed during neutering as part of the trap-neuter-return protocol overseen by a licensed veterinarian, in which a one-quarter-inch diagonal cut is made to remove the point of a cat's ear, and is preferably, but not exclusively, on the cat's left ear, to identify the cat as being sterilized and lawfully vaccinated for rabies.

R. "Established fee" means a fee that is authorized within this title, which is set in the amount identified in the adopted budget resolution for the current fiscal year or by other appropriately adopted resolution of the city council.

S. "Exotic animal" means any animal not commonly domesticated by man.

T. "Exposed to rabies" means that an animal has been bitten by or in contact with any animal known to be, or suspected of being, infected with rabies.

U. "Fowl" means domestic birds to include chickens, ducks, geese and pigeons.

V. "Groomer" means person engaged in the cleaning, styling and appearance maintenance of animals or the handling of animals in preparation for these services and who is responsible for complying with the provisions of this chapter; hereafter referred to as groomer.

W. "Grooming" means the cleaning, styling and appearance maintenance of animals or the handling of animals in preparation for these services.

X. "Inclement weather" includes rain, hail, sleet, snow, high winds, extreme low temperatures, or extreme high temperatures.

Y. "Kennel," for purposes of this title, means any premises on which animals are kept or housed for conducting the business of buying, selling, grooming, training or boarding of animals for compensation.

Z. "Livestock" means domesticated equine or bovine regardless of age, sex or breed or any small ruminant, including domesticated sheep, goats, and animals of the same approximate size and weight.

AA. "Low risk" means an animal identified in Texas guidelines for rabies prevention as not requiring rabies testing. Includes mice, rats, squirrels, nutria, rabbits, opossums, armadillos, shrews, prairie dogs, beavers and gophers.

BB. "Neglected" means to fail to provide an animal with one or more of the necessities of life,

including air, food, water, veterinary care, exercise or protection from the sun and other elements of nature.

CC. "Officer" means any employee of the program, an employee in the code enforcement division, or a commissioned peace officer.

DD. "Owner" means a custodian, caretaker or person who feeds or harbors the subject animal for more than seventy-two hours without said animal being identified as a trap-neuter-return cat. Persons caring for an animal at the specific request of an owner are not included in the definition of owner, but are required to keep the animal in compliance with this Code.

EE. "Permit official" means the person or persons designated by the city manager as being responsible for issuing permits, licenses or making any other authorization provided for in this Code or any ordinance.

FF. "Person" means any person, firm, partnership, association, corporation, company or organization of any kind.

GG. "Program" means the department's animal services program.

HH. "Properly fitted" means, with respect to a collar, a collar that measures the circumference of a dog's neck plus at least one inch.

II. "Public playground" means that area of a public park designated and intended for use by children and containing equipment suitable for play (i.e., swings, slides, merry-go-rounds).

JJ. "Qualified animal" means (1) a pure-breed animal which is currently registered with an applicable registry which has been established for the purposes of breed registration with the primary or intended purpose of exhibiting, showing, competing, or certifying the animals at local, national, international or breed club-sanctioned events or shows, and which is also eligible for registry with one or more additional agencies, and which may be bred or placed for the specific goal of exhibition or competition, or (2) an animal which is bred solely for the intended purpose of being trained and certified as service animals, for search and rescue use, or for official use by law enforcement and governmental agencies.

KK. "Rabbit" is used in its general sense and includes animals of the same approximate size and weight, which require similar husbandry.

LL. "Restraint" means a chain, rope, tether, leash, cable, or other device that attaches a dog to a stationary object or trolley system.

MM. "Retail establishment" means an establishment that, in whole or in part, offers as allowed under this title dogs and/or cats for sale or resale to consumers or wholesalers, excluding a permitted breeder.

NN. "Service animals" means any guide dog, signal dog, or other animal individually trained to provide assistance to a person with a disability, or any animal recognized as a service animal pursuant to the Americans with Disabilities Act of 1990, as amended.

OO. "Shade" means a place giving protection from the heat and light of the sun.

PP. "Shelter" means an enclosure that is structurally sound and in good repair, provides convenient access to clean food and water, enables the animal to remain dry and clean, is constructed and maintained so that it is impervious to moisture and can be readily sanitized, is constructed so as to protect the animal from injury, and provides sufficient space to allow each animal to turn around fully, stand, sit and lie in a comfortable position.

QQ. Shop" means a building or portion of a building, designated by a registration holder and located and occupied in accordance with applicable local zoning and building codes where grooming is performed, completely separated from living quarters; hereafter referred to as "shop," and includes a motor vehicle or location that is identified or permitted as a temporary location under state law.

RR. "Transfer" or "offer to transfer" means to convey or offer to convey by all methods of conveyance.

SS. "Unprovoked attack" means an attack by a dog on a person in a place, other than the

property where the dog's owner resides or where the dog is being kept including, but not limited to, the secure enclosure in which the dog was being kept at the time of the attack, that is not:

1. In response to being tormented, abused, or assaulted by the person attacked;

2. In response to pain or injury;

3. In response to an assault or attempted assault upon another person by the person attacked; or

4. To protect itself, its food, or its nursing offspring.

TT. "Trap-neuter-return" means the process of humanely trapping, sterilizing, vaccinating for rabies, ear tipping, and returning a cat to the location where it was trapped.

UU. "Veterinarian" means a doctor of veterinary medicine who holds a valid license to practice his profession in one or more of the fifty United States.

VV. "Veterinary clinic" means a facility or hospital for diagnosis and treatment of animals.

WW. "Veterinary officer" means the veterinarian or other person determined to be qualified to perform the duties established in this title, officially designated by the director. (Ord. 16807 §§ 1, 5, 6, 2007; Ord. 16229 § 1 (part), 2006)
(Ord. No. 17428, § 1, 10-5-2010/eff. 1-1-2011; Ord. No. 17635, § 1, 8-30-2011; Ord. No. 18472, § 1, 2-23-2016; Ord. No. 19087, § 1, 8-18-2020; Ord. No. 19282, § 1, 1-19-2022)

7.04.020 Standards of care.

The director may from time to time prescribe and publish standards of care constituting a reflection of the best current common practice concerning animal welfare and public health, and recommend the adoption of additional regulations as may be required to control the maintenance, harboring, buying, selling, holding, exhibiting, showing or otherwise dealing with animals. (Ord. 16807 § 7, 2007: Ord. 16229 § 1 (part), 2006)
(Ord. No. 17635, § 2, 8-30-2011)

7.04.030 Enforcement—Right of entry—Interference with officer.

A. The director and veterinary officer shall be primarily responsible for the enforcement of this title, and are authorized to delegate enforcement authority to their designated employees and to coordinate and work directly with the employees in the code enforcement division who shall also have enforcement authority, and to utilize the resources of the department in any public health emergency.

B. For the purpose of discharging the duties imposed by this title and to enforce its provisions, any officer is empowered at all reasonable times and upon presentation of appropriate credentials, to enter any premises upon which an animal is kept or harbored and to demand the exhibition, by the owner of a dog or cat, of the certificate of vaccination, verification of microchip, and certificate of registration for such dog or cat. It is further provided that any officer may enter, at all reasonable times and upon the presentation of appropriate credentials, the premises where an animal is kept in an allegedly cruel or inhumane manner and demand to examine or impound such animal, when in his opinion it requires humane treatment. No officer shall, however, enter a private residence for purposes of making an inspection under this chapter without first receiving permission from an occupant of such residence or being authorized to inspect such residence by a magistrate or by order of a court of competent jurisdiction as provided by law.

C. No person shall interfere with, hinder or molest any officer in the performance of his duty.

D. Nothing in this section shall be construed to limit an officer's ability to enter upon a premises when a violation of this title or other law occurs in their presence and entry is made in accordance with state and federal law.

E. Canvassing may be conducted by any officer at the direction of the director,-veterinary officer, or code enforcement division supervisor when deemed necessary to ensure compliance with this

title. (Ord. 16807 §§ 3 (part), 8, 2007; Ord. 16229 § 1 (part), 2006)
(Ord. No. 17428, § 2, 10-5-2010/eff. 1-1-2011; Ord. No. 17635, § 3, 8-30-2011)

7.04.040 Recordkeeping—Annual audits required.

A. It shall be the duty of the program to keep or cause to be kept, accurate and detailed records of all vaccination certificates, microchips, registrations and permits of pets, the impoundment and disposition of animals, and all bite incidents reported to the program and investigation of same.

B. The aforesaid records shall be audited annually in the same manner as other city records are audited. (Ord. 16229 § 1 (part), 2006)

7.04.050 Animal bites—Reporting requirements.

A. A person who knows of an animal bite or scratch to an individual that the person could reasonably foresee as capable of transmitting rabies, or who knows of an animal that the person suspects is rabid, shall report the incident or animal to the program as soon as possible but not later than twenty-four hours from the time of the incident. The report must include:

1. The name and address of the victim and of the animal's owner, if known; and

2. Any other information that may help in locating the victim or animal.

B. It shall be the duty of every veterinarian having an animal quarantined for a bite incident to submit a written report to the program as to the condition of the quarantined animal on the initial day of observation and on the fifth day and the tenth day immediately following the date of the bite incident.

C. It shall be the duty of every veterinarian to report immediately to the program his diagnosis of any animal observed by him as a rabies suspect. (Ord. 16807 § 3 (part), 2007; Ord. 16229 § 1 (part), 2006)

7.04.060 Zoonotic disease reporting required.

It shall be the duty of every veterinarian, physician, or other person having knowledge of any zoonotic disease or condition caused by animals which may endanger the public or animal health or create a public nuisance to submit a written report to the director within twenty-four hours of this knowledge. (Ord. 16807 § 9, 2007: Ord. 16229 § 1 (part), 2006)
(Ord. No. 17635, § 4, 8-30-2011; Ord. No. 19087, § 2, 8-18-2020)

7.04.070 Veterinary care of city-owned animals.

The veterinary officer shall provide professional veterinary care as required on all problems concerning the health and welfare of city-owned animals, act as designated caretaker for the animals in the care or control of animal services and serve as a professional consultant of the acquisition, management and disposition of the animals. (Ord. 16229 § 1 (part), 2006)
(Ord. No. 19087, § 3, 8-18-2020)

7.04.080 Violation—Penalty.

A. Except as otherwise provided by Texas state law, any person violating any provision of this title shall be deemed guilty of a misdemeanor and shall be punished by a fine not to exceed two thousand dollars.

B. In addition to any penalties provided herein, this title is enforceable by injunction.

C. If a person provides proof that she or he cured the violation prior to the first court appearance, the court may assess a defendant an administrative fee set forth in the fee schedule for each violation if a charge under this section is dismissed. Euthanasia of the animal or surrender of the animal to the department is not acceptable proof that the violation was cured. (Ord. 16229 § 1 (part), 2006)
(Ord. No. 19087, § 4, 8-18-2020)

7.04.090 Permit applications.

A. Application for all permits required in this title shall be submitted in conformity with the

specific provisions of this title, together with any required application fee as provided by ordinance or resolution of the city council. The application shall be sworn to by the applicant, and shall contain the following information:

1. The full name and address of the individual(s) or organization applying for the permit;

2. All information required by the applicable city code provision in this title; and

3. Such other information, attachments, and submissions that are requested on the application form as reasonably necessary for a fair determination as to whether the permit should be issued.

C. Upon receipt of a proper application as provided in this title, the person or persons designated by the applicable city code provision, or as otherwise designated by the director, shall review and process the application.

D. The person or persons designated by the applicable city code provision, or as otherwise designated by the director, in accordance with applicable provisions of this title, shall issue the permit in accordance with and as provided by the applicable city code provision in this title, or if no issuance process is specified within the applicable city code provision in this title, within ten days of the completion of the processing of the application, unless the person or persons find:

1. One or more of the statements made in the application are not true;

2. That applicant has made or caused to be made false statements or misrepresentations on the application;

3. The applicant has failed to submit a complete application;

4. The required fee has not been paid; or

5. The requirements of the applicable city code provision in this title relating to permit requirements or issuance are not met.

E. A person may appeal a denial of a permit to the city manager as provided in Section 7.04.100 of this chapter. (Ord. 16807 § 10, 2007: Ord. 16229 § 1 (part), 2006)

7.04.100 Appeals.

A. A person who has a permit issued under this title, who has been served with a suspension or revocation notice of said permit, may appeal the director's or veterinary officer's action to the city manager as provided herein. Within ten business days of taking such action, the director or veterinary officer shall prepare a report indicating the reasons for the suspension or revocation, and shall provide a copy to the person. The director's or veterinary officer's decision is final unless within ten calendar days from the date of receiving the director's or veterinary officer's report, the person files with the city clerk a written appeal to the city manager specifying the reasons for the appeal. Said appeal shall also include a written rebuttal to the director's or veterinary officer's report.

B. The city manager or his designated deputy city manager shall review the director's or veterinary officer's report and the appellant's rebuttal. The city manager or designee may allow the appellant to make an oral presentation or submit additional rebuttal. The city manager or designee shall make a ruling on the appeal within a reasonable period of time after the appeal has been filed.

C. The city manager or designee shall sustain, reverse or modify the action of the director or veterinary officer and shall notify the appellant of his decision in writing. The decision of the city manager or designee is final. (Ord. 16807 § 11, 2007)
(Ord. No. 17635, § 5, 8-30-2011)

7.04.110 Reports to council.

A. The city manager or his designee will compile statistics regarding the number of animals impounded by the city and the outcome of each impoundment and provide the city council with reports containing this information on a semi-annual basis or as otherwise directed by the city council. Each report shall include the following specific information:

1. A comparison of the number of animals euthanized during the current reporting period with the number of animals euthanized during the prior reporting period;

2. Categorize each animal impounded, released and euthanized to the greatest extent practicable by terms that relate to or identify the animal's health or behavior, and the number of each that were microchipped;

3. Information as to the number of registrations for the current reporting period and a comparison to the number of registrations from the prior reporting period, the types and number of permits issued by the program; and

4. Statistics concerning enforcement activities of the program, with a particular focus on enforcement pertaining to litter permits and breeder permits.

B. The department shall establish a policy and procedure for categorizing each animal pursuant to subsection A.2., in accordance with the requirements established for the department in this title pertaining to euthanizing animals, or by using appropriate definitions or standards as are industry-established or recognized.

(Ord. No. 17428, § 3, 10-5-2010/eff. 1-1-2011)

7.04.120 Severability.

If any section, subsection, sentence, clause or phrase of this title is for any reason held to be unconstitutional, such decision shall not affect the validity of the remaining portions of this title.

(Ord. No. 17428, § 4, 10-5-2010/eff. 1-1-2011)

Chapter 7.08

ANIMALS GENERALLY

Sections:

7.08.010 Nuisances designated.

7.08.020 Abandonment—Reporting violations.

7.08.030 Restraint.

7.08.040 Confinement of certain animals.

7.08.050 Standards for animal care.

7.08.060 City-owned animals.

7.08.070 Use of poisons prohibited.

7.08.080 Animal regulation and disease control department services—Fees.

7.08.090 Dangerous wild animals.

7.08.010 Nuisances designated.

The following shall be considered a public nuisance and shall be unlawful:

A. The keeping of any animal, which by causing frequent or long continued noise shall disturb the comfort and repose of any person of ordinary sensibilities in the vicinity as provided in Chapter 9.40 of this code.

B. The keeping of any animal in such a manner as to endanger the public health or as to annoy neighbors of ordinary sensibilities by the accumulation of feces and putrid materials which cause foul and offensive odors;

C. The keeping of any animal which habitually deposits body wastes upon or destroys by chewing, scratching, digging or otherwise, property other than that of the owner of such animal;

D. All animal pens, stables or enclosures in which any animal may be kept or confined, which from use have become offensive to persons of ordinary sensibilities;

E. The keeping of animals whose number or the conditions under which they are kept disturbs the comfort and repose of any person of ordinary sensibilities in the vicinity; or endangers the animal's health, safety or welfare;

F. It is unlawful for any person owning or having control or custody of an animal to permit the animal to defecate upon the city's public property or upon the private property of another unless the person immediately removes the feces and properly disposes of it; provided, however, that nothing contained in this chapter authorizes such person to enter upon the private property of another without permission. In addition, it is unlawful for any person to walk an animal on the city's public property or upon the private property of another without carrying at all times a suitable container or other suitable instrument for the removal and disposal of animal feces. Disabled persons using trained guide or personal assistance dogs are exempt from this provision. This section does not apply to any peace officer while using an animal in the discharge of law enforcement activities; and

G. The keeping of animals for which a rabies vaccine is available and who remain unvaccinated against rabies. (Ord. 16807 § 12, 2007; Ord. 16229 § 1 (part), 2006)

7.08.020 Abandonment—Reporting violations.

A. It is unlawful for any person to abandon any animal in the city.

1. The release of an ear tipped cat to the location where it was trapped does not constitute abandonment within the meaning of this chapter.

2. An owner who fails to retrieve their animal from the department's possession within six calendar days of receiving written notice constitutes abandonment. For the purpose of this provision, notice is considered received upon the department's mailing the notice via regular mail to the address listed in the microchip record.

B. Every person having knowledge of a violation shall report immediately to the program any facts, which could lead to the identification of any person or group of persons violating subsection A of this section. However, nothing in this provision shall subject an individual with knowledge of the violation to prosecution under Section 7.04.080.

C. It is unlawful for any person having charge or custody of an animal, as owner or otherwise, to place or confine such animal or allow such animal to be placed or confined or to remain in a motor vehicle or livestock trailer under such condition or for such period of time as may endanger the health or well-being of such animal due to heat, lack of food or water, or such other circumstances as may reasonably be expected to cause suffering, disability or death.

1. Any officer finding an animal in a motor vehicle or livestock trailer in violation of the provisions enumerated in subsection C is authorized to obtain a locksmith at the owner's cost, or break and enter the vehicle if necessary to remove the animal.

2. Removed animals will be impounded at the center or veterinary clinic for safekeeping. Owners may claim their animals upon payment of all reasonable charges or fees that accrued for removal and maintenance of the animal, plus impoundment fees.

3. At the time the animal is removed from the motor vehicle or livestock trailer, the officer shall leave a written notice bearing his name and title and the address where the animal may be claimed.

4. The animal will be retained for a minimum of six calendar days, and if not claimed, the animal shall become the property of the department on the seventh calendar day. (Ord. 16807 § 3 (part), 2007; Ord. 16229 § 1 (part), 2006
(Ord. No. 18472, § 2, 2-23-2016; Ord. No. 19087, §§ 5, 6, 8-18-2020)

7.08.030 Restraint.

A. Every person owning or having charge, care, custody or control of any animal shall keep such animal exclusively upon his own premises by means of physical restraint, provided, however, that such animal may be off such premises if it is under direct physical control of a competent person.

B. It is a defense to prosecution under subsection A. that:

1. The animal is a dog in an off-leash area as permitted elsewhere in this City Code, including, but not limited to, Title 13;

2. The animal is a cat that can be identified as having an owner or caregiver by collar and tags, microchip. or identifying tattoo; or

3. The animal is an ear tipped cat indicating that it has been processed through the trap-neuter-return protocol. (Ord. 16229 § 1 (part), 2006)
(Ord. No. 18472, § 3, 2-23-2016)

7.08.040 Confinement of certain animals.

A. The owner shall confine within a building or enclosure every fierce, dangerous or vicious animal in accordance with all applicable Texas statutes. Confinement shall be in such a manner that the animal cannot come in contact with any person or other animal.

B. The veterinary officer may cause the muzzling, secure confinement, removal from the city or humane destruction of any animal on an emergency basis for any reason of public health and safety, including due to:

1. An unprovoked attack by an animal upon any person or animal; or

2. Whenever any lawful patron or visitor of a business is jeopardized by a guard dog, which is not securely confined during hours the business is open to the public. (Ord. 16229 § 1 (part), 2006)
(Ord. No. 19087, § 7, 8-18-2020)

7.08.050 Standards for animal care.

Every person within the City of El Paso who owns or harbors any animal, or who owns, conducts, manages or operates any animal establishment for which a license is required by this title shall comply with each of the following conditions:

A. Shelter and shade for animals must be provided.

B. No animal shall be neglected.

C. All animals shall be supplied with sufficient good and wholesome food and clean water as often as the feeding habits of the respective animals require.

D. All animals and all animal buildings or enclosures shall be maintained in a clean, safe and sanitary condition.

E. Animal buildings and enclosures shall be so constructed and maintained as to prevent escape of animals. All reasonable precautions shall be taken to protect the public from the animals and the animals from the public.

F. Every animal establishment shall isolate animals known to be sick sufficiently so as to not endanger the health of other animals. Sick animals shall at all times be isolated from other animals.

G. The owner or custodian of an animal shall be required to present an animal to a veterinarian for examination or treatment if the director or veterinary officer finds this is necessary in order to maintain the health of the animal and notifies the owner or custodian to do so.

H. It is unlawful to restrain a dog in violation of this section.

1. An owner may not leave a dog outside and unattended by use of a restraint that unreasonably limits the dog's movement:

a. Between the hours of ten p.m. and six a.m.;

b. Within five hundred feet of the premises of a school; or

c. In the case of inclement weather or extreme weather conditions, including conditions in which:

i. The actual or effective outdoor temperature is below thirty-two degrees Fahrenheit;

ii. A heat advisory has been issued by the National Weather Service, or a local or state authority, including the City of El Paso; or

iii. A tornado warning has been issued for the City or County of El Paso by the National Weather Service.

2. In this section, a restraint unreasonably limits a dog's movement if the restraint:

a. Uses a collar that is pinch-type, prong-type, or choke-type or that is not properly fitted to the dog;

b. Is a length shorter than the greater of:

i. Five times the length of the dog, as measured from the tip of the dog's nose to the base of the dog's tail; or

ii. Ten feet;

c. Is in an unsafe condition; or

d. Causes injury to the dog.

3. Exceptions. The following do not constitute a violation of this section:

a. A dog restrained to a running line, pulley, or trolley system and that is not restrained to the running line, pulley, or trolley system by means of a pinch-type, prong-type, choke-type, or improperly fitted collar;

b. A dog restrained in compliance with the requirements of a camping or recreational area as defined by a federal or state authority or the City of El Paso;

c. A dog restrained for a reasonable period, not to exceed three hours in a twenty-four-hour period, and no longer than is necessary for the owner to complete a temporary task that requires the dog to be restrained;

d. A dog restrained while the owner is engaged in, or actively training for, an activity that is conducted pursuant to a valid permit or license issued by the State of Texas or City of El Paso if the activity for which the license is issued is associated with the use or presence of a dog;

e. A dog restrained while the owner is engaged in conduct directly related to the business of shepherding or herding cattle or livestock; or

f. A dog restrained while the owner is engaged in conduct directly related to the business of cultivating agricultural products, if the restraint is reasonably necessary for the safety of the dog.

4. This section does not prohibit a person from walking a dog with a hand-held leash.

I. It shall be a violation of this title to provide an alcoholic beverage, controlled substance or illegal drug to an animal, unless prescribed by a veterinarian. (Ord. 16229 § 1 (part), 2006)
(Ord. No. 19087, § 8, 8-18-2020; Ord. No. 19282, § 2, 1-19-2022)

7.08.060 City-owned animals.

A. No person shall throw, drop or put any object or substance within the fence, balustrade, wall or other barrier enclosing any area in which any animal owned or maintained by the city is

kept, or shall go within any such enclosed area, or shall reach into such enclosure with any part of his body or with any object.

B. No person shall carry away an animal kept in such enclosed area, or shall take or have such animal in his possession or control, or release any such animal from such enclosed area.

C. No person shall enter the sick quarantine area to look at or reclaim their animal. Pictures of the animal will be placed outside the quarantine rooms.

D. This section does not apply to persons employed by the city and acting within the scope of their employment to take care of such animals, or to care for or repair such enclosure. (Ord. 16807 § 3 (part), 2007; Ord. 16229 § 1 (part), 2006)
(Ord. No. 19087, § 9, 8-18-2020)

7.08.070 Use of poisons prohibited.

A. It is unlawful for any person to use any toxin or poison to eliminate animals or fowl except as provided in subsection B of this section.

B. Whenever there is a proposed use of any poison or toxin, the director shall make a determination to permit the use of poisons or toxins, if any, which meet the following guidelines:

1. A poison or toxin must eliminate animals or fowls humanely;

2. The conditions, which the use would seek to eliminate, must be health-threatening;

3. All dead animals must be removed from the premises within a reasonable time and never more than twenty-four hours after death;

4. No poisons or toxins, which create a secondary health hazard to mammals, shall be excluded from the prohibition of subsection A of this section;

5. No poison or toxin shall be allowed to remain on premises more than twenty-four hours after the health hazard has been eliminated and notice given by the director;

6. It shall be the duty of the owner of any property on which there is poison or toxin to remove or contain such substance so as to prevent it from being a danger to humans, animals or fowl.

C. Nothing in this section shall be interpreted to regulate the pest control industry. (Ord. 16807 § 13, 2007; Ord. 16229 § 1 (part), 2006)
(Ord. No. 19087, § 10, 8-18-2020)

7.08.080 Animal regulation and disease control department services—Fees.

For services rendered, the following fees identified in the adopted budget resolution for the current year or other appropriately adopted resolution by the city council shall be charged:

A. Euthanasia performed on owned animals at the owner's request upon approval by the director and/or designee;

B. Impoundment of animal at the owner's request for euthanasia;

C. Handling of animal bodies brought to the program for disposal;

D. Vaccination of all animals, upon intake to animal services and regardless of ownership; and

E. Microchipping of animals as required by Title 7 of the City Code, regardless of the place of performance of such service. (Ord. 16229 § 1 (part), 2006)
(Ord. 17161, § 1, 8-11-2009; Ord. No. 19087, § 11, 8-18-2020)

7.08.090 Dangerous wild animals.

Except for those animals defined in Texas Health and Safety Code Section 822.102(1)-(11), ownership, possession, confinement or care of a dangerous wild animal, including a wolf or wolf-dog hybrid, is prohibited within the city. (Ord. 16229 § 1 (part), 2006)

Chapter 7.12

DOGS AND CATS

Sections:

7.12.010 Running at large prohibited.

7.12.020 Registration, vaccination, and microchips required.

7.12.030 Collar and tag required.

7.12.040 Vaccination and microchip required.

7.12.050 Animals in public places.

7.12.060 Dangerous dogs.

7.12.010 Running at large prohibited.

A. Every person owning or having charge, care, custody or control of any dog or cat shall keep such dog or cat exclusively upon his own premises by means of appropriate and humane physical restraint; provided, however, that such dog may be off such premises if it is under direct control of a competent person by means of a secure leash or by some other equivalent means of direct physical control, and such cat may be off such premises if it is under direct physical control of a competent person.

B. The prohibition against an animal running at large shall not apply to:

1. A cat which has been vaccinated as required by this chapter and which is wearing the required vaccination tags;

2. A cat that can be identified as having an owner or caregiver by collar and tags, microchip, identifying tattoo, or is an ear tipped cat indicating that it has been processed through the trap-neuter-return protocol; or

3. A cat whose owner or caregiver can provide documentation of the cat's sterilization. (Ord. 16807 § 3 (part), 2007; Ord. 16229 § 1 (part), 2006) (Ord. No. 18472, § 4, 2-23-2016)

7.12.020. Registration, vaccination, and microchips required.

A. Dogs, cats and ferrets shall be registered, vaccinated and have an implanted microchip as provided in this title.

1. No person who is a resident of the city shall have within the city for more than thirty days any dog, cat or ferret four months of age or older unless such dog, cat or ferret is currently registered with the program.

2. No person who is not a resident of the city shall have within the city any dog, cat or ferret for more than ninety days unless such dog, cat or ferret is currently registered with program.

3. No dog, cat or ferret shall be registered unless it has a current vaccination as is required by the director and an implanted microchip. A registration certificate and tag may be obtained from veterinarians who have obtained authority from the program to issue them, or from an employee at the center upon presentation of a certificate of current vaccination and evidence of microchip.

4. No person shall have within the city any dog, cat or ferret four months of age or older for more than ten days unless such dog, cat or ferret is currently vaccinated against rabies.

5. An ear tipped cat that has been processed through the trap-neuter-return protocol shall be exempt from the registration and microchip requirements of this chapter. A person who requests that the program implant a microchip into or register an ear tipped cat that has been processed through the trap-neuter-return protocol, shall pay the applicable fee authorized by City Council for said service.

6. All city contracts involving other municipalities or government entities must be consistent with the requirements of this chapter.

B. Upon application by a veterinarian, the program shall furnish the veterinarian with a supply of microchips and pre-numbered registration certificates and corresponding tags. The veterinarian shall be authorized to receive applications and issue registration certificates and tags for animals that are currently vaccinated and microchipped.

Copies of all certificates issued shall be distributed and transmitted to various city agencies in accordance with arrangements made by the program with the veterinarians, provided that no information shall be released in violation of Texas Health and Safety Code Section 826.0211. When applying for additional microchips, certificates and tags the veterinarian shall account to the program for all those previously supplied to him, and shall remit to the program all fees collected. A veterinarian may exchange or return up to one hundred, unused, expired from the previous year tags for current year tags annually. This section does not apply to lost tags. He shall be held financially responsible for any microchips, certificates and tags no longer in his possession that have not been issued or voided and returned to the program. The program may refuse to supply additional microchips, certificates and tags to any veterinarian who fails to account for all items previously furnished to him by the program. All fees collected by any veterinarian are payable to the city upon demand.

C. Application for initial issuance or renewal of each registration must be made by the owner in writing or in person, and be accompanied by the established fee for a dog, cat, or ferret. If an original current registration certificate is lost or destroyed, the owner may obtain a duplicate by paying the established fee.

D. A registration shall be renewed annually.

E. No person shall use a certificate or tag for any animal other than the one for which it was issued.

F. If there is a change in ownership or owner contact information of a registered dog, cat or ferret, the new owner shall update contact information to include any new address and telephone number, and have the registration and microchip information transferred to his name or new contact information within seven days after the change in ownership or change in owner contact information. Application for a change of ownership or change of contact information of a registered dog, cat or ferret shall be made to the program in the manner established by the director in writing, in person, or at the office of a participating veterinarian, and be accompanied by the established fee.

G. Fee-exempt registrations may be issued for the following, provided however, eligibility for fee-exempt registration does not relieve the owner of his responsibility under other provisions of this title:

1. Dogs that are trained and used in an official capacity by a law enforcement or governmental agency;

2. Service animals; and

3. Animals other than dogs, cats or ferrets that are vaccinated against rabies. (Ord. 16807 §§ 3 (part), 4 (part), 14, 2007; Ord. 16229 § 1 (part), 2006)

(Ord. No. 17428, § 5, 10-5-2010/eff. 1-1-2011; Ord. No. 18472, § 5, 2-23-2016; Ord. No. 19087, § 12, 8-18-2020; Ord. No. 19282, § 3, 1-19-2022)

7.12.030 Collar and tag required.

A. Upon registration there shall be delivered to the owner a metallic tag stamped with the registration certificate number and the year in which issued.

B. The owner shall see that the dog or cat wears at all times a collar or harness to which the current registration tag shall be attached, except as in subsection C or D of this section. It is unlawful for any person to remove the tag from the collar or harness without the owner's consent.

C. Dogs or cats confined within a residence need not wear their collar or harness nor their registration tag while within the residence. However, in no case shall a dog or cat be allowed to exit the interior of the residence without wearing their collar or harness with the current registration tag attached.

D. Dogs or cats competing at approved dog or cat club shows or trials or while being transported to and from such events need not wear their collar or harness nor their registration tag.

E. If such tag is lost or destroyed, the owner shall apply at the center in writing, in person, or at the office of a participating veterinarian, for a new tag by presentation of the applicable vaccination

certificate, registration certificate, and evidence of microchip, accompanied by the established fee. (Ord. 16229 § 1 (part), 2006)
(Ord. No. 17428, § 6, 10-5-2010/eff. 1-1-2011)

7.12.040 Vaccination and microchip required.

No person shall own, keep or harbor within the city any dog, cat or ferret four months of age or older unless such dog, cat or ferret has a current vaccination and implanted microchip. A dog, cat or ferret will have a current vaccination for one year. However, after April 1, 2006, a vaccination may be current for a period of three years dependent upon the type of vaccine administered. All vaccinations shall be administered according to the label recommendations of a United States Department of Agriculture (USDA) approved vaccine. The dog, cat or ferret must be re-vaccinated before the expiration of the first and each subsequent current vaccination period. (Ord. 16229 § 1 (part), 2006)

7.12.050 Animals in public places.

A. Nothing in this section shall apply to dogs in the company of law enforcement personnel while executing official duties.

B. It is lawful for any service animal to be admitted when actually accompanying a disabled person to any public place or vehicle, which the disabled person may have the lawful right to enter, if the animal is currently vaccinated, registered and microchipped.

C. Except as provided in subsection A or B of this section, it is unlawful for any person having charge, care, custody or control of any animal to allow such animal in any public vehicle or in any public building not used primarily for animals or their care, unless permission in writing has been issued by the program.

D. All persons having ownership, care, custody or control of any animal shall be prohibited from taking the animal upon or into any public playground, school grounds or athletic facility within the city unless permission in writing has been issued by the owner of the premises or their designee. (Ord. 16229 § 1 (part), 2006)

7.12.060 Dangerous dogs.

A. A dog suspected of being dangerous may be impounded or quarantined in accordance with procedures as established by this title.

B. A dog that is designated as dangerous may not be released from impoundment or quarantine until such time as the owner has complied with the standards for keeping a dangerous dog enumerated in this title and Texas Health and Safety Code Section 822.042. Failure to comply with the requirements for keeping a dangerous dog within thirty days of the receipt of notice by the veterinary officer or director that said dog is dangerous, shall result in a determination that the dog has been abandoned.

1. Exception. The program may not proceed with humane destruction of a dangerous dog in any case where the owner has filed a proper appeal of the dangerous dog determination with the municipal court.

2. All fees for administration, quarantine and impound shall be paid prior to the release of any dangerous dog.

a. The veterinary officer director may extend the thirty-day compliance period by written request of the owner provided that documentation of the need for an extension is provided (for instance, building permits, building plans, building contracts, correspondence from insurance company). During the period of extension the dog shall remain in the custody of the center and impound fees shall continue to accrue.

C. Appeal of a dangerous dog determination shall be in accordance with Texas Health and Safety Code Section 822.0421. (Ord. 16807 § 2 (part), 2007; Ord. 16229 § 1 (part), 2006)
(Ord. No. 17635, § 6, 8-30-2011)

Chapter 7.14

ANIMAL SALES, BREEDING AND SHOWS

Sections:

7.14.010 Permits required.

7.14.020 Dog and cat sales and transfers.

7.14.030 Sale of certain puppies and kittens prohibited.

7.14.040 Roadside and flea market sales.

7.14.050 Animal litter permit.

7.14.060 Animal establishments—Operations, shows and exhibitions.

7.14.070 Animal establishments—Permit—Application—Fees.

7.14.080 Breeder's permit.

7.14.090 Animal welfare organization permit.

7.14.010 Permits required.

A. No person shall operate an animal establishment or otherwise conduct the kenneling, or boarding of animals for a fee; or conduct the breeding, showing, or exhibiting of dogs or cats; without obtaining a valid permit for each purpose or activity as provided in this chapter.

B. The owner or operator of an animal welfare organization may become qualified to engage in the operations and obtain the benefits allowed under this title, by obtaining a permit from the department that recognizes and registers the organization for all purposes under this title.

C. A person who owns a qualified animal and who is 18 years of age or older and desires to engage in the breeding of such qualified animal and obtain the benefits allowed under this title, may become qualified to engage in such activity by obtaining a breeder's permit as provided in this chapter.

D. Application for the permits required in this section shall be made as provided in Section 7.04.090 and as further required in this chapter, and be accompanied by payment of the established fee. In addition to the information required under Section 7.04.090 and the applicable sections of this chapter, an applicant for a permit under this section shall submit the following information:

1. The location of the premises where the animals will be located or the business involving the animals will be conducted;

2. The acreage or square footage where such animals are to be kept;

3. The number of such anticipated animals, or average numbers of such animals;

4. The kinds of enclosures within which they are to be kept; and

5. Information or evidence of compliance with the city's zoning ordinances for facilities, activities, and operations conducted on property within the city limits.

E. No permit authorized under this title shall be issued for animals kept in violation of the city's zoning ordinances.

F. The director shall make any and all inspections deemed necessary for the issuing of permits and to ensure compliance with this chapter.

G. The director may impose a requirement for an applicant to undertake a basic training course relating to animal care or breeding, as appropriately relating to a particular permit and as may be developed by the department, as part of the requirements for obtaining a permit under this title.

H. All permits required under this chapter shall be renewed annually by the last day of the month in which the permit was issued the previous year, accompanied by payment of the established fee, except that all permits for animal welfare organizations shall be issued at no charge to the organization, and a permit for a breeder shall be issued a three-year period. No permit shall be transferable to a third party.

(Ord. No. 17428, § 8, 10-5-2010/eff. 1-1-2011; Ord. No. 17635, § 7, 8-30-2011; Ord. No. 19087, § 13, 8-18-2020)

7.14.020 Dog and cat sales and transfers.

A. No person shall sell a dog or cat except as provided in this title.

B. No person who advertises to sell or transfer a dog or cat that is under one year of age may charge the purchaser or transferee an amount that is greater than is allowed in subsection E.

C. No retail establishment may sell or transfer a dog or cat that is under one year of age for a charge or amount that is greater than is allowed in subsection E. Provided however, a retail establishment legally selling dogs or cats for profit as of April 1, 2011, may continue to sell dogs or cats under one year of age, at a price that is greater than is allowed in subsection E., through December 31, 2012. Thereafter, commencing on January 1, 2013, no retail establishment may sell or transfer a dog or cat under one year of age for a charge or amount that is greater than is allowed in subsection E, regardless of when the inventory was procured.

D. No animal welfare organization, in the course of transferring a dog or cat that is under one year of age, may request a charge or amount from a transferee than is greater than is allowed in subsection E.

1. All dogs and cats over the age of four months that are transferred to a new owner shall be spayed or neutered, except as otherwise allowed in this title or under state law.

2. Prior to transferring any dog, cat or ferret to a new owner, an animal welfare organization shall check such animal for a microchip, and report the finding of a microchip to the program unless the animal is returned to the registered owner.

3. Every dog, cat or ferret coming into the possession of an animal welfare organization, received in any manner other than a release by the owner of the dog, cat or ferret, must be held a minimum of three (3) full days if the dog, cat or ferret did not have a registration tag or microchip at the time of initial possession, or for a minimum of six (6) full days if the dog, cat or ferret had a registration tag or microchip, before the animal may be transferred to a transferee/new owner.

4. Any animal may be transferred by an animal welfare organization to the department or to another animal welfare organization before the minimum holding time required under this section, provided however the receiving organization or the department must continue to hold the animal for such additional time as to meet the minimum requirements of this title.

5. Nothing in this chapter shall prohibit an animal welfare organization from receiving donations consistent with an organization's non-profit status.

E. The maximum amount of charges that can be made or requested under subsections B., C., and D. for the sale or transfer of a dog or cat under one year of age are established for the purpose of allowing a seller, retail establishment or animal welfare organization to recover the following-listed expenses and costs incurred in conjunction with caring for the dog or cat, and are set as follows:

1. If the amount or charges made or requested in accordance with this section for the sale or transfer of a dog or cat under the age of one year exceeds $50.00 per animal, a person, retail establishment, or animal welfare organization selling or transferring the dog or cat shall provide documentation of all expenses incurred other than the cost of food to the purchaser or transferee prior to the sale or transfer, and the amount of the charges made or requested shall not exceed the total amount of the documented expenses provided plus the cost of food, and in the case of an animal welfare organization, the cost of providing shelter. The purchaser or transferee shall be provided with a copy of all such documentation at the time of sale or transfer.

2. If such documentation is not available or cannot be provided to the purchaser or transferee prior to the sale or transfer, the maximum amount that can be charged or requested is $50.00 if the dog or cat has not been spayed or neutered or $150.00 if the dog or cat has been spayed or neutered. If the animal was spayed or neutered, the

purchaser or transferee shall be provided with the name and address of the veterinarian who performed the surgery at the time of sale or transfer.

3. This section shall not apply to:

a. A retail establishment legally selling a dog or cat for profit as of April 1, 2011 through December 31, 2012, as provided in section 7.14.020 C.;

b. A permitted breeder holding a litter permit and selling a qualified animal; or

c. An individual holding a litter permit who does not conduct any advertisement for the sale of the animals within the city, including but not limited to making an open or public offering of the animals to the general public.

F. Every person, to include but not be limited to a retail establishment, breeder, and animal welfare organization, shall maintain accurate records of all sales, transactions, and transfers involving animals, which records shall show the date, type of animal, type of activity, and parties involved in any transaction or transfer of an animal. Such records shall be kept for two years, and will be made available upon demand to the program.

G. The director shall make any and all inspections deemed necessary to ensure compliance with this section and all required permits. Animals shall be kept under sanitary conditions so as not to endanger the public or animal health nor create a nuisance.

H. No person, including but not limited to a retail establishment, breeder, animal establishment, or animal welfare organization, shall release a dog, cat or ferret four months of age or older to any person unless such dog, cat or ferret is currently vaccinated against rabies and microchipped for identification.

I. Animals which are offered for sale or transfer to the public shall not be displayed or offered if they bear evidence of malnutrition, ill health, unhealed injury or having been kept in unsanitary condition, unless such sale or transfer is approved in writing by a veterinarian providing treatment for the subject animal.

J. Nothing in this section prohibits a retail establishment from allowing an animal welfare organization to use the retail establishment's premises for the transfer of dogs and cats in compliance with this title.

(Ord. No. 17428, § 9, 10-5-2010/eff. 1-1-2011; Ord. No. 17630, § 1, 8-16-2011; Ord. No. 17635, § 8, 8-30-2011)

7.14.030 Sale of certain puppies and kittens prohibited.

No person may sell or offer for sale or transfer in any manner, a puppy or kitten under the age of eight weeks other than a puppy or kitten, or litter or litters taken to the department or to an animal welfare organization, or transferred between such organizations.

(Ord. No. 17428, § 10, 10-5-2010/eff. 1-1-2011)

7.14.040 Roadside and flea market sales.

It is unlawful for any person to sell, trade, barter, lease, rent, give away, or display for a commercial purpose any animal on any roadside, public right-of-way, commercial parking lot, or at any flea market or festival, provided, however, that this paragraph shall not apply to an animal welfare organization when such organization has received prior written approval for such sale from the director and is complying with the specific limitations as set forth in the authorization, and with the requirements of Chapter 13.20 of this Code.

(Ord. No. 17428, § 11, 10-5-2010/eff. 1-1-2011; Ord. No. 17635, § 9, 8-30-2011)

7.14.050 Animal litter permit.

A. Any person who intentionally or unintentionally breeds a female dog or cat, or who owns or has custody of or control over a litter of puppies or kittens must obtain an animal litter permit and pay the established fee within fourteen days of the litter's birth.

B. The issuance of a litter permit authorizes the whelping of no more than one litter per the female dog or cat identified in the permit in any twelve-month period.

C. The issuance of a litter permit does not authorize the sale of any puppies or kittens from the litter, except as permitted in this title.

D. Any owner, or person advertising the sale or other transfer of a puppy or kitten under four months of age located within the city limits shall include or display the litter permit number on such advertisement regardless of the media used for such advertisement, and all charges or prices listed in such advertisements must be in compliance with the requirements of Section 7.14.020.

E. Any breeder advertising the sale or other transfer of a qualified animal shall include or display the breeder permit number in addition to the litter permit number on such advertisement regardless of the media used for such advertisement.

F. The provisions in Subsections A. and D. do not apply to the department, an animal welfare organization, or a veterinarian or veterinary facility, which has received abandoned puppies or kittens.

(Ord. No. 17428, § 12, 10-5-2010/eff. 1-1-2011)

7.14.060 Animal establishments—Operations, shows and exhibitions.

A. Every animal establishment shall maintain accurate records of all transactions, shows and exhibitions involving animals, which records shall show the date, type of animal, type of activity, and parties to any transaction or transfer of an animal. Such records shall be kept for two years and will be made available upon demand to the program.

B. Animals shall be kept under sanitary conditions so as not to endanger the public or animal health nor create a nuisance.

C. In cases involving a bona fide scientific or educational program, a show or exhibition made available for free to the public, or animals owned by the city, the veterinary officer may waive the requirements of this title concerning permits, fees or conditions if he finds that such waiver would not endanger the public or animal health or safety nor create a nuisance.

D. Animals shall not be displayed or exhibited to the public if they bear evidence of malnutrition, ill health, unhealed injury or having been kept in unsanitary condition, unless such display or exhibit is approved in writing by a veterinarian providing treatment for the subject animal, and such approval is made available to the department for inspection at the time of the display or exhibit.

(Ord. No. 17428, § 13, 10-5-2010/eff. 1-1-2011)

7.14.070 Animal establishments—Permit—Application—Fees.

A. Application for a permit to operate an animal establishment, including a show or exhibition, shall be made as provided in Section 7.04.090, and shall contain the information required herein and in Sections 7.04.090 and 7.14.010 of this Code.

B. In addition to the information required under Sections 7.04.090 and 7.14.010, an applicant for a permit under this section shall submit evidence or information as to the methods by which the applicant will comply with the requirements of Section 7.14.060 of this Code.

C. No permit may be issued or renewed under this section without the review and approval of the veterinary officer or other designee of the director that the applicant has submitted adequate evidence or information as required by subsection B.

D. Except as provided herein, all permits under this section shall be issued in accordance with Section 7.04.090 and shall be valid for twelve months, and may be renewed as provided in section 7.14.010 of this Code. Permits to show or exhibit animals (rodeos, circuses, shows, etc.) shall be valid only for the thirty-day period immediately following issuance.

(Ord. No. 17428, § 14, 10-5-2010/eff. 1-1-2011)

7.14.080 Breeder's permit.

A. Application for a breeder's permit shall be made as provided in Section 7.04.090, and shall contain the information required herein and in Sections 7.04.090 and 7.14.010 of this Code.

B. In addition to the information required under Sections 7.04.090 and 7.14.010, an applicant for a permit under this section shall submit the following information:

1. Whether the qualified animals are dogs or cats or both species, and the organizations or registries with which these qualified animals are registered;

2. A declaration of intent to breed only currently registered purebred animals of the same type and registry which are also eligible for registry with one or more additional registration agencies and that the offspring of any breeding are expected to be eligible for registration with the same registry, and/or to breed animals solely for the intended purpose of being trained and certified as service animals, for search and rescue use, or for official use by law enforcement and governmental agencies;

3. A statement that the applicant will not breed a qualified animal, other than service animals and animals for search and rescue use or for official use by law enforcement and governmental agencies, outside the age parameters as set by their sanctioned breed club or registry standards;

4. An agreement to provide copies of documents evidencing compliance with the requirements of this section at the request of the program;

5. The names of primary care-givers for the qualified animals in addition to the applicant;

6. A statement as to whether the applicant, any person identified under subsection B.5., or any person who resides at the premises where the qualified animal lives, has ever been convicted of or is on deferred adjudication for neglect, mistreatment or cruelty to animals; and

7. Provide evidence that all animals in the possession of the applicant are in compliance with all provisions of this title.

C. All permits under this section shall be issued in accordance with Section 7.04.090, provided however, no permit shall be issued to an applicant if the applicant, or any person residing at the premises where the qualified animal lives, when the director determines that such person has been convicted of or is on deferred adjudication probation for a violation of any federal, state, or local law or regulation for neglect, mistreatment or cruelty to animals that is relevant to the propriety of the issuance of the permit. Such a conviction or deferred adjudication occurring after a permit is issued may be grounds for the revocation of the permit. All permits shall be valid for thirty-six months, and may be renewed as provided in Section 7.14.010 of this Code.

D. Prior to issuing the permit, or upon an annual basis after the permit is issued, or at any time when the director has a reasonable basis to believe that an inspection is necessary to analyze or determine the appropriate status of the permit, he or his designees may inspect the qualified animal's living area during normal business hours upon giving the applicant a minimum of twenty-four hours notice. The applicant shall have an opportunity to be present at the time of inspection or to designate a representative to be present.

E. The issuance of a breeder's permit does not authorize the sale of any puppies or kittens from a litter, unless the breeder has also obtained a litter permit and complied with all other applicable provisions of this title including, but not limited to, the requirements for advertising.

(Ord. No. 17428, § 15, 10-5-2010/eff. 1-1-2011; Ord. No. 17635, § 10, 8-30-2011)

7.14.090 Animal welfare organization permit.

A. Application for a permit to operate an animal welfare organization shall be made as provided in Section 7.04.090, and shall contain the information required herein and in Sections 7.04.090 and 7.14.010 of this Code.

B. In addition to the information required under Sections 7.04.090 and 7.14.010, an applicant for a permit under this section shall submit the following information:

1. The organizational structure of the organization, including the names and address(es) of the members of the governing board;

2. If the organization is a tax-exempt non-profit corporation, information evidencing the non-profit status, along with evidence that the organization is in good standing with the Texas Comptroller of Public Accounts;

3. If the organization is not a tax exempt non-profit corporation, a description of the organizational structure and the length of time it has existed, and if the organization has never been permitted by the city under this section or approved as a rescue partner with the department, a letter of recommendation from a permitted animal welfare organization or a veterinarian;

4. Complete or update as necessary a previously completed rescue partner application as developed by the department and provide information as to how the organization will operate, how it will hold its animals, its plans for dealing with animals with behavior problems and medical/health problems; how it will acquire veterinary care for animals when necessary, how it will train any employees or volunteers, and how it will find new homes for animals;

5. Provide information as to the types of animals that the organization will work with and the anticipated maximum number of animals the organization will hold at any one time;

6. Provide information regarding the anticipated percentage of work that will be undertaken by the organization regarding dogs and cats that have been abandoned, recovered or found within El Paso County, Texas or a bordering county;

7. Explain the organization's policies and procedures for accepting the return of any dog or cat that had been less than one year of age when the organization transferred it to a new owner; and

8. Provide a copy of the most recent annual shelter inspection report required under Texas Health and Safety Code Section 823.003(d), or if the organization is foster-based, a letter from a veterinarian indicating that he has inspected some or all of the foster homes for the health and welfare of the animals and the findings thereof.

C. All permits under this section shall be issued in accordance with Section 7.04.090 at no cost and shall be valid for twelve months, and may be renewed as provided in Section 7.14.010.

D. Prior to issuing the permit, or at any time when the director has a reasonable basis to believe that an inspection is necessary to analyze or determine the appropriate status of the permit, he or his designees may inspect any premises identified under subsection B.8. during normal business hours or other agreed-upon hours upon giving the applicant a minimum of twenty-four hours notice. The applicant shall have an opportunity to be present at the time of inspection or to designate a representative to be present.

(Ord. No. 17428, § 16, 10-5-2010/eff. 1-1-2011; Ord. No. 17635, § 11, 8-30-2011)

Chapter 7.15

GROOMING SERVICES

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Article I. General Provisions

7.15.010 Compliance required.

No person shall engage in the practice of animal grooming without first having obtained and paid for a valid license from the permit official. All persons subject to regulation by this Chapter 7.15 shall also comply with all standards regulating the humane treatment and grooming of animals, including, but not limited to those found in Title 7 of the El Paso City Code, Texas Penal Code, §42.092, and CFR Title 9, Chapter I, Standards.
(Ord. No. 19087, § 14, 8-18-2020)

Article II. Groomer License

7.15.020 Groomer license required.

A. A groomer license must be obtained by any person that performs animal grooming.

B. Licensed groomers must have said license and valid state-issued photographic identification in their possession and available for inspection by shop owners, clients and city officials at all times when grooming.

C. A licensed groomer shall only perform animal grooming at a grooming shop that has obtained a current, valid registration from the City of El Paso.
(Ord. No. 19087, § 14, 8-18-2020)

7.15.030 Groomer license application.

A. An individual seeking to perform animal grooming must first obtain from the director or designee, an animal groomer certificate or other proof of completion of the director's animal groomer training course or an equivalent course pre-approved by the director before obtaining a groomer license.

1. An individual must register for the animal groomer training course by submitting a form obtained from the department and paying the course fee.

2. The animal groomer certificate or other proof of animal groomer training course completion is valid for five years from the date of issuance.

B. An individual seeking to perform animal grooming must submit a signed, verified application annually, with the appropriate application fee(s), to the permit official. Applications shall be on forms obtained from the permit official and must contain, at a minimum, the following true and correct information and documentation:

1. Full name of groomer;

2. Address of groomer;

3. Proof of identification of groomer, in the form of a valid government-issued photographic identification;

4. A copy of the individual's animal groomer certificate and pet CPR certificate;

5. A sworn statement that the groomer is not under criminal investigation for, does not have pending criminal charges or a conviction for animal cruelty or a similar offense (e.g., battery, assault, domestic violence, any crime of a violent nature) in Texas or any other jurisdiction in the past seven years;

6. Any other information as required by the application.

(Ord. No. 19087, § 14, 8-18-2020; Ord. No. 19282, § 4, 1-19-2022)

7.15.040 Application processing.

A. Upon receipt of a complete application as provided in this chapter and payment of the established fee, the permit official shall review and process the application.

B. The permit official shall issue the license unless he finds that the application should be denied as provided in Section 7.15.070 of this Code.

C. The license shall be valid for the term of one year. Groomers in possession of a groomer license must apply to the permit official for renewal no more than sixty days and no less than thirty days prior to the expiration of the license to prevent a lapse in licensing. Applications for renewal shall be processed in the same manner as an original application.

D. In the event the permit official denies the application, the applicant shall be notified in writing as to the reason(s) for the denial, as set forth in Section 7.15.070 of this Code.

(Ord. No. 19087, § 14, 8-18-2020)

7.15.050 No license transfer.

A groomer license cannot be transferred to another person for any use or benefit. A groomer may utilize the same valid groomer license at more than one shop provided the shop has a valid registration as required by this chapter.

(Ord. No. 19087, § 14, 8-18-2020)

7.15.060 Fees.

The groomer shall pay to the city all established fees for the license provided in accordance with this chapter.

(Ord. No. 19087, § 14, 8-18-2020)

7.15.070 Denial.

A. The permit official shall deny an application for a groomer license, whether original or renewal, by serving the applicant with written notice by regular mail to the address listed in the application, if:

1. The applicant is found to be in violation of this chapter or found, in the opinion of the director, to pose a significant risk to the public or animals for failure to meet the minimum standards of care set forth in Title 7; or

2. The permit official finds any of the following:

a. That the applicant has supplied false or incorrect information on any application for a license;

b. That the applicant has failed to supply all information and/or documentation required on the application form;

c. That the applicant has failed to pay the application fee;

d. That the applicant is under criminal investigation for animal cruelty or a similar offense

(e.g., battery, assault, domestic violence, any crime of a violent nature) in Texas or any other jurisdiction;

e. That the applicant has pending criminal charges for animal cruelty or a similar offense (e.g., battery, assault, domestic violence, any crime of a violent nature) in Texas or any other jurisdiction;

f. That the applicant has been convicted of animal cruelty or a similar offense (e.g., battery, assault, domestic violence, any crime of a violent nature) in Texas or any other jurisdiction in the past seven years;

g. That the applicant was providing grooming services without a license within the preceding six months of the person's application for a license.

B. In the event that an applicant's current license is under suspension, no new license or suspension shall be issued until the term of such suspension has expired.

C. In the event that an applicant's current or prior license is revoked pursuant to Section 7.15.080 of this chapter, no new license or suspension shall be issued until the term of such revocation has expired.

D. The permit official shall issue the written notice of denial of a license to the applicant which shall contain, at a minimum, the following:

1. The name of the applicant;

2. Statement that the license is denied; and

3. Reason(s) for the denial.

(Ord. No. 19087, § 14, 8-18-2020; Ord. No. 19282, § 5, 1-19-2022)

7.15.080 Groomer license suspension or revocation.

A. Suspension of Groomer's License. The director may suspend a groomer's license if the director determines any of the following occurred:

1. The license holder is under investigation or has pending criminal charges for violating a provision of this chapter or a rule adopted under this chapter;

2. The license holder is under investigation or has pending criminal charges for having been intoxicated or under the influence of a mind-altering substance while providing grooming services;

3. The license holder is under criminal investigation or pending criminal charges for animal cruelty;

4. The license holder groomed an animal(s) without verifying that the animal had current vaccinations, microchip and city registration as required by applicable city, state and federal regulations;

5. The license holder failed to provide a written report of a grooming-related injury requiring medical attention or the death of any animal whom he or she groomed to the department within forty-eight hours of the occurrence of such incident.

B. Term of Suspension. The director may suspend a groomer's license according to the below:

1. Except as provided by paragraph 2 below, the director may suspend a groomer's license for up to sixty calendar days.

2. A suspension due to a criminal investigation or pending criminal charges shall remain in effect until the first of the following occurs:

a. The license term expires;

b. The criminal investigation ends without pursuit of criminal charges; or

c. The criminal charges are dismissed.

C. Notice of Intent to Suspend. Prior to the issuance of a suspension pursuant to paragraph A of this section, the director will issue a notice of intent to suspend. The notice of intent to suspend will include the following:

1. Name and address of the groomer;

2. Reason(s) for proposed suspension;

3. Notice of any corrective measures necessary to bring the groomer into compliance with the requirements of this chapter;

4. Ten calendar day time limit for the completion of the corrective measures;

5. Statement that the license, is subject to suspension for failure to complete the corrective measures within the allotted time;

6. Require the groomer license be surrendered in-person or by certified mail to the director within seven calendar days of receipt of notice of suspension.

7. Statement that the license, is subject to revocation for failure to surrender groomer license within the allotted time; and

Failure to adopt the corrective measures by the time allotted in the notice of intent to suspend will result in suspension of the license. The director may reduce the time of suspension upon completion of the required corrective measures.

D. The director may revoke a groomer's license if the licensed groomer is suspended for two violations of this chapter within a twelve-month period.

E. Revocation of Groomer's License. The director may revoke a groomer's license subject to this chapter if the director determines that any of the following occurred:

1. The license holder supplied false or misleading information on any application for a license;

2. The license holder continues to provide grooming services on a suspended license;

3. The license holder is found to be violating a provision of this chapter or a rule adopted under this chapter;

4. The license holder is found to have been intoxicated or under the influence of a mind altering substance while providing grooming services;

5. The license holder is convicted of animal cruelty.

F. A licensed groomer that has had his license suspended or revoked shall surrender the groomer license to the director within seven calendar days of receiving notice from the city of suspension or revocation, regardless of whether the registrant or licensed groomer requests an appeal in accordance with Section 7.15.190 of this Code.

1. In the case of suspension, failure to surrender the groomer license within seven days' notice of the suspension shall cause the director to revoke the license. For the purpose of this provision, notice is considered received upon the department's mailing the notice via regular mail to the address listed in the groomer's license application.

2. A suspended license holder shall not commence operations after the term of suspension has ended without first retrieving his license from the director.

G. Notice of Suspension or Revocation. The director shall issue a written notice of suspension or revocation, pursuant to subsection A of this section to the groomer at issue and any shop at which such groomer provides services, which shall contain, as applicable, the following:

1. Name and address of the groomer;

2. Statement of whether the license is suspended or revoked;

3. Reason(s) for the suspension or revocation;

4. Notice of any corrective measures necessary to bring the groomer into compliance with the requirements of this chapter;

5. Reserved.

6. Statement that the license, if suspended, is subject to revocation for failure to complete the corrective measures by the end of the suspension term;

7. Order that the groomer license be surrendered in-person or by certified mail to the director at animal services within seven calendar days of receipt of notice of suspension or revocation;

8. Statement that the license, if suspended, is subject to revocation for failure to surrender groomer license within the allotted time; and

9. Statement that the suspension or revocation may be appealed under the provisions set forth in Section 7.15.190 of this Code.

H. License Reinstatement. A licensed groomer may seek to reinstate a revoked license according to the below:

1. A groomer must reapply for a groomer's license pursuant to Section 7.15.030 of this chapter. A groomer may not reapply for a new license for a period of twelve months after said license has been revoked.

2. A groomer who is found to perform grooming services with a revoked license shall not be eligible to reapply for a new license for a period of eighteen months after said license has been revoked.

(Ord. No. 19087, § 14, 8-18-2020; Ord. No. 19282, § 6, 1-19-2022)

Article III. Shop Registration

7.15.090 Shop registration required.

A. Shop registration shall be required for any animal establishment where grooming is performed. It shall be a violation of this chapter for any shop to perform grooming without first having obtained and paid for a valid registration from the permit official.

B. The shop registration certificate shall be displayed inside the Shop during regular operation of the shop and shall be visible for inspection by groomers, clients and city officials.

C. The registration requirements of this chapter do not apply to veterinary offices, veterinary clinics, or veterinary hospitals.

D. A registered shop shall only employ and/or allow groomers in possession of a current, valid groomer license issued by the city, to provide grooming services and must adhere to the following:

1. The shop must at all times maintain and have available for department inspection a list on a form provided by the city, with the following:

a. The name and groomer license number of each groomer employed by or allowed the use of the shop in the previous two years; and

b. The date each groomer began employment with or use of the shop; and

c. The date each groomer ceased its employment with or use of the shop.

2. The shop must perform a mandatory statewide criminal background check on any groomer employed by or allowed to use the shop;

3. Any groomer with a conviction for animal cruelty or any similar violation (e.g., battery, assault, domestic violence, any crime of a violent nature) within the previous seven years must not be employed by or allowed use of the shop;

E. The shop shall maintain shop hygiene, public health and safety standards in accordance with applicable municipal, state and federal regulations so as not to endanger the public or animal health or create a nuisance.

F. The shop shall ensure that the building, facility or mobile structure in which it operates is kept in a clean and sanitary condition and is equipped with the following:

1. Hot and cold running water; and

2. Working air conditioning and heating unit(s); and

3. Proper ventilation and filtration system.

G. The shop shall take every reasonable precaution to ensure that animals are not abused, mistreated, neglected, endangered or in any manner made to suffer by any persons, animals, or any other means. Any tack, equipment, device, substance or material that is or could be injurious or cause unnecessary cruelty to any animal is prohibited.

H. The shop shall provide each animal under its care and control with the following:

1. Fresh water within each animal's kennel. Fresh water shall be provided in a bowl free of debris, and if not new, properly sanitized before each animal's use;

2. A clean and sanitary kennel or cage of appropriate size, suitable for each animal.

I. The shop must provide a means for the owner(s) of any animal receiving grooming services to observe the grooming process either by use of a video surveillance system or windows through which the services can be seen as they are rendered.

J. The shop must not take possession of or provide grooming services to an animal that does not have current vaccinations, microchip and city registration as required by applicable city, state and federal regulations.

K. The shop must report all grooming-related injuries to animals requiring medical atten-

tion and the deaths of any animal at the shop, in writing within forty-eight hours of the occurrence of such incident to the department. Such report must include:

1. The name, address and phone number of the owner or guardian of the injured or deceased animal as well as name of the injured or deceased animal; and

2. Any information known as to how the injury to or death of the animal took place.

L. The shop must maintain accurate records of all transactions showing the date, type of animal, type of activity, groomer that provided services and parties to any transaction. Such records shall be kept for a minimum of two years and will be made available upon demand to the department.

M. All documents relevant to each groomer's application, criminal background check, and supporting documents shall be available on site for inspection.

(Ord. No. 19087, § 14, 8-18-2020; Ord. No. 19282, § 7, 1-19-2022)

7.15.100 Shop registration application.

A. Shop registration shall be required for any shop where animal grooming is performed. No shop shall be allowed to perform animal grooming without first having obtained and paid for a valid registration from the permit official. Applications shall be on forms obtained from the permit official and shall contain, at a minimum, the following information:

1. Full name of the owner of the shop;

2. Address of the owner of the shop;

3. Shop address;

4. Indication of existing shop (in operation for the preceding twelve months) or new shop;

5. Copies of all groomers' current animal grooming licenses issued by the department; shops will not be issued shop registration without licensed groomers;

6. Except for a shop that is new, copy of current shop registration issued by the permit official;

7. A current, valid certificate of occupancy issued by the building official for the shop;

8. The acreage or square footage where the animals will be kept;

9. The number of anticipated animals or the average number of animals the shop services over the course of a twelve-month span;

10. The kinds of enclosures within which the animals are to be kept;

11. Information or evidence as to the methods by which the applicant will make and maintain accurate records of all transactions for a minimum of two years;

12. Information or evidence as to the methods by which the applicant will keep the shop under sanitary conditions so as not to endanger the public or animal health nor create a nuisance;

13. Information or evidence of compliance with the city's zoning ordinances for facilities, activities and operations conducted on property within the city limits; and

14. Any other information as required by the application.

(Ord. No. 19087, § 14, 8-18-2020; Ord. No. 19282, § 8, 1-19-2022)

7.15.110 Shop registration application processing.

A. Upon receipt of a proper application as provided in this chapter and payment of the established fee, the permit official shall review and process the application.

B. The permit official shall issue the registration unless he finds that the registration should be denied as provided in Section 7.15.140 of this Code, as amended.

C. The term of a registration issued under this chapter shall be renewed annually by the last day of the month in which the registration was issued, accompanied by payment of the established fee. Applications for a renewal shall be processed in the same manner as an original application.

D. In the event the permit official denies the application, the applicant shall be notified in writing as to the reason(s) for the denial, as set forth in Section 7.15.140 of this Code, as amended.
(Ord. No. 19087, § 14, 8-18-2020)

7.15.120 No transfer of shop registration.

Shop registration shall not be transferred to any person for any use or benefit. Any change in ownership or registered shop location shall require a new shop registration application and registration.
(Ord. No. 19087, § 14, 8-18-2020)

7.15.130 Fees.

The shop registrant shall pay to the city all established fees for the registration provided in accordance with this chapter.
(Ord. No. 19087, § 14, 8-18-2020)

7.15.140 Denial.

A. The permit official shall deny an application for shop registration, whether original or renewal, by serving the applicant with written notice by regular mail, if:

1. The applicant is found to be in violation of this chapter or found, in the opinion of the director, to pose a significant health risk to the public or animals for failure to meet the minimum health standards or standards of care set forth in this chapter; or

2. The permit official finds any of the following:

a. That the applicant has supplied false or incorrect information on any application for a registration;

b. That the applicant has failed to supply all information required on the application form;

c. That the applicant has failed to pay the application fee; or

d. That the applicant does not have any licensed groomers employed to operate.

B. In the event that an applicant's registration is under suspension, no new registration shall be issued until the term of such suspension has expired.

C. In the event that an applicant's registration is revoked, no new registration shall be issued until the term of such revocation has expired.

D. The permit official shall issue the written notice of denial of a registration to the applicant which shall contain, at a minimum, the following:

1. The name of the applicant or shop;

2. Statement that the registration is denied; and

3. Reason(s) for the denial, as listed in this section.
(Ord. No. 19087, § 14, 8-18-2020; Ord. No. 19282, § 9, 1-19-2022)

7.15.150 Shop suspension or revocation.

A. Suspension of Registration. The director may suspend a registration subject to this chapter if the director determines that any of the following is true:

1. The registration holder supplied false or misleading information on any application for a registration;

2. The registration holder is under investigation or has pending criminal charges for a violation of a provision of this chapter, a rule adopted under this chapter, or a provision of Title 7 of the El Paso City Code, as amended.

B. Term of Suspension. The director may suspend a shop's registration according to the below:

1. Except as provided by paragraph 2 below, the director may suspend a shop's registration for up to sixty calendar days.

2. A suspension due to a criminal investigation or pending criminal charges shall remain in effect until the first of the following occurs:

a. The registration term expires;

b. The criminal investigation ends without pursuit of criminal charges; or

c. The criminal charges are dismissed.

C. Notice of Intent to Suspend. Prior to the issuance of a suspension pursuant to paragraph A of this section, the director will issue a written notice of intent to suspend. The notice of intent to suspend will include the following:

1. Name and address of the registrant and shop;

2. Reason(s) for the suspension or revocation;

3. Notice of corrective measures to bring the shop into compliance with the requirements of this chapter;

4. Reasonable time limit for the completion of the corrective measures;

5. Statement that the registration, if suspended, is subject to revocation for failure to complete the corrective measures within the allotted time;

6. Order that the registration certificate be surrendered in-person or by certified mail to the director at animal services within seven days of receipt of notice;

7 Statement that the registration, if suspended, is subject to revocation for failure to surrender registration certificate within the allotted time; and

8. Statement that the suspension or revocation may be appealed under the provisions set forth in Section 7.15.190 of this chapter.

Failure to adopt the corrective measures by the time allotted in the notice of intent to suspend will result in suspension of the registration. The director may reduce the time of suspension upon completion of the required corrective measures.

D. The director may revoke a shop registration, if the shop owner is suspended for two violations of this chapter within a twelve-month period.

E. Revocation of Registration. The director may revoke a groomer's license subject to this chapter if the director determines that any of the following occurred:

1. The shop continues to operate on a suspended registration;

2. The registration holder is convicted of violating a provision of this chapter, a rule adopted under this chapter, or a provision of Title 7 of the El Paso City Code, as amended.

F. A shop registrant that has had his registration suspended or revoked shall be required to surrender the registration certificate to the director within seven calendar days of receiving notice from the city of suspension or revocation, regardless of whether the registrant requests an appeal in accordance with Section 7.15.190 of this Code.

1. In the case of suspension, failure to surrender the registration certificate within seven days of notice shall cause the director to revoke the registration. For the purpose of this provision, notice is considered received upon the department's mailing the notice via regular mail to the mailing address listed in the registrant's application.

2. A shop registrant shall not commence operations after the term of suspension has ended without first retrieving their registration from the director.

3. A shop registrant shall not continue operations during the period of suspension or revocation of their registration.

G. Notice of Suspension or Revocation. The director shall issue a written notice of suspension or revocation of a registration which shall contain, as applicable, the following:

1. Name and address of the registrant and shop;

2. Statement of whether the registration is suspended or revoked;

3. Reason(s) for the suspension or revocation;

4. Where applicable, order that the shop be closed;

5. Notice of corrective measures to bring the shop into compliance with the requirements of this chapter;

6. Reasonable time limit for the completion of the corrective measures;

7. Statement that the registration, if suspended, is subject to revocation for failure to complete the corrective measures within the allotted time;

8. Order that the registration certificate be surrendered to the director within seven days of receipt of notice;

9. Statement that the registration, if suspended, is subject to revocation for failure to surrender registration certificate within the allotted time; and

10. Statement that the suspension or revocation may be appealed under the provisions set forth in Section 7.15.190 of this chapter.

H. The director shall post a sign at any location where a shop registration has been suspended or revoked pursuant to this chapter. Said sign shall contain the following statement:

SHOP CLOSED BY ORDER OF THE CITY OF EL PASO DEPARTMENT OF ANIMAL SERVICES. VIOLATORS OF THIS ORDER ARE SUBJECT TO PROSECUTION PURSUANT TO TITLE 7 AND ANY OTHER APPLICABLE PROVISIONS OF THE EL PASO CITY CODE.

I. Reinstatement of Registration. A registrant may seek to reinstate a revoked registration according to the below:

1. A registrant must reapply for a new registration pursuant to Section 7.15.100 of this chapter. A registrant may not reapply for a new registration for a period of twelve months after said registration has been revoked.

2. A shop registrant who is found to perform grooming services with a revoked registration shall not be eligible to reapply for a new registration for a period of eighteen months after said registration has been revoked.
(Ord. No. 19087, § 14, 8-18-2020)

7.15.160 Immediate closure by director.

A. The director may order the immediate closure of a shop when there is a reasonable basis to believe that an animal contracted or was exposed to any serious communicable disease while being groomed at the shop. Immediately following such closure, the director shall proceed as appropriate under Section 7.15.150 of this Code regarding the status of the shop registration and licenses issued to any groomers providing onsite services in the preceding seven days.

B. Failure to promptly comply with the notice of immediate closure shall subject the shop to other legal remedies as are available to the city.
(Ord. No. 19087, § 14, 8-18-2020)

Article IV. Enforcement Authority

7.15.170 Enforcement authority.

The duly authorized representative of the director, to include but not limited to a peace officer, officer or inspector from animal services, code compliance or planning and inspections, shall be authorized to administer and enforce the provisions of this chapter and to issue citations to any person violating the provisions of this chapter.
(Ord. No. 19087, § 14, 8-18-2020)

Article V. Inspection

7.15.180 Inspection.

A. The director or designee, a peace officer, officer or inspector from animal services, code compliance or planning and inspections, may enter any shop at all reasonable times to inspect, enforce or investigate the shop's registration and groomers' licensing. If such shop is occupied, the individual conducting the inspection shall first present proper credentials and request entry. If no one is onsite at the shop to provide entry, an effort shall be made to locate the owner or other person responsible for the premises to request entry.

B. If such entry is denied or permission cannot be obtained, the director shall have recourse through every remedy provided by law to secure entry.

C. When the director or designee obtains a legal inspection warrant or other remedy to secure entry, the owner, occupant or person having charge, care or control of the shop, building or premises shall, upon a proper request, promptly permit the director or designee or inspector entrance to inspect and investigate pursuant to this chapter or other applicable state or federal law.

D. The director shall provide a written notice, by means of the inspection report or otherwise, to the owner or person in charge of the

animal grooming shop and applicable groomer when a violation of any provision of this chapter or other applicable state or federal law is determined, which shall include:

1. A description of each violation;

2. A specific, reasonable time period for the correction of each violation;

3. A statement that the shop who receives said notice, may request a re-inspection through the city's appropriate office and pay the re-inspection fee authorized by city council; and

4. A statement that a shop's registration is subject to suspension or revocation and that legal action may be taken for a failure to comply with the notice.

5. A statement that a groomer's license is subject to suspension or revocation and that legal action may be taken for failure to comply with the notice.

E. A groomer may be subject to inspection either during an unannounced inspection of a shop, or as a result of a scheduled inspection arranged by the director.
(Ord. No. 19087, § 14, 8-18-2020)

Article VI. Appeals

7.15.190 Groomer license and shop registration-appeal of denial, suspension or revocation.

Any applicant for a groomer's license or shop registration may appeal the denial, suspension or revocation of a license or registration required by Chapter 7.15 of this Code to the city manager as provided in this section.

A. A director or permit official's decision is final unless within ten calendar days from the date of the issuance of a notice of denial, suspension, or revocation, the applicant, licensee, or registrant files with the city clerk a written appeal to the city manager specifying reasons for the appeal. Said appeal shall also include a written rebuttal to the notice of denial, suspension or revocation.

B. The city manager or designee shall review the notice of denial, suspension, or revocation and the appellant's rebuttal. The city manager or designee may allow the appellant to make an oral presentation or submit additional rebuttal. The city manager or designee shall make a ruling on the appeal within a reasonable period of time after the appeal has been filed.

C. The city manager or designee shall sustain, reverse or modify the action of the director, or permit official and shall notify the appellant of the decision in writing. The decision of the city manager or designee is final.
(Ord. No. 19087, § 14, 8-18-2020)

Chapter 7.16

IMPOUNDMENT

Sections:

7.16.010 Notification.

7.16.020 Redemption—Disposition.

7.16.030 Fees.

7.16.010 Notification.

A. Dogs or cats not vaccinated, registered or microchipped may be seized subject to warrant and impounded at the center.

1. This provision shall not apply to an ear tipped cat indicating that it has been processed through the trap-neuter-return protocol.

B. Any animal found to be running at large may be seized and impounded at the center.

1. This provision shall not apply to a cat that can be identified as having an owner or caregiver by collar and tags, microchip, or identifying tattoo.

2. This provision shall not apply to an ear tipped cat indicating that it has been processed through the trap-neuter-return protocol.

C. Any animal found to be kept in violation of the provisions of this title, or infected with diseases or kept under conditions which could endanger the public or animal health or create a nuisance, may, upon lawful order, be impounded by the program. Animals so impounded shall be released after the reason for causing the impoundment has been corrected and all fees have been paid, or such animals shall be subject to the provisions for disposition.

D. Reasonable efforts shall be made by the program to promptly notify the owner of any impounded animal as verified by the information provided in a vaccination certificate, registration certificate or microchip record by telephone or personal service at the place listed on the certificate. (Ord. 16229 § 1 (part), 2006)
(Ord. No. 18472, § 6, 2-23-2016)

7.16.020 Redemption—Disposition.

A. The owner of any impounded dog or cat shall be entitled to resume possession of such dog or cat upon payment of the established impoundment and daily handling fees and compliance with vaccination, registration, microchipping, spaying or neutering requirements, and other legal requirements for keeping such dog or cat.

B. An additional fee in the amount established by the council shall be paid by the owner of an unaltered dog or cat more than four months of age that is impounded by the program for a second time within a one year period, upon a third time within a two-year period or upon a fourth and each subsequent time during the animal's life. To further the city's interest in combating pet overpopulation and promoting spaying and neutering of pets as part of responsible dog and cat ownership, the city will refund the additional established fee to the owner if the owner provides evidence to the program that the dog or cat was spayed or neutered within thirty days after the day the owner resumed possession of the dog or cat. All requests for a refund under this section shall be submitted to the program no later than the 60th day after the date the dog or cat was spayed or neutered and only one fee paid under this subsection is eligible for a refund.

C. Any animal other than a dog or cat impounded may be reclaimed by the owner upon payment of impoundment and daily handling fees and compliance with other legal requirements for keeping of such animal.

D. Any animal impounded and not claimed by the owner may be humanely destroyed after being held for at least three days after the day of impoundment; provided however, that any impounded dog, cat or ferret found to be microchipped or displaying a current vaccination and/or registration tag shall be held for at least six (6) days after the day of impoundment.

1. Notwithstanding the foregoing:

a. Litters of animals including the nursing mother, and unweaned animals without a mother, may be transferred to an animal welfare organization immediately after impound; and

b. Injured and ill animals may be transferred to an animal welfare organization immediately after or at any time during impoundment upon the representation by such animal welfare organization that it will seek immediate veterinary care for the animal.

c. For all animals transferred to an animal welfare organization under this section, the organization shall hold the animals for reclaim by the owner the requisite number of days set forth above and may request charges to recover the fair and reasonable costs of care of such animals upon being reclaimed.

d. In the event an ear tipped cat indicating that is has been processed through the trap-neuter-return protocol is impounded, said cat shall not be subject to the stated impoundment holding period and shall be returned by the program to the location where the cat was trapped as soon as the program's resources permit, subject to Subsection 7.16.020G of this Chapter.

e. In the event any cat not showing evidence of ownership (whether by collar and tags, microchip, identifying tattoo or other method of displaying identification), is impounded, said cat may become a trap-neuter-return cat, and in that case shall be processed through the trap-neuter-return protocol, subject to Subsection 7.16.020G of this Chapter.

E. The department shall establish policies and procedures which shall be used in determining the health and potential identity of impounded animals.

F. If the director or veterinary officer determines that any unclaimed animal is reasonably healthy, currently vaccinated against rabies or vaccinated prior to release for adoption as required, and would not constitute a threat to public or animal health of the community, he may, after the holding period, offer such animal for adoption by using selection criteria established by the director. Individual animals not fitting the selection criteria will not be eligible for adoption, but may be released to an animal welfare organization.

1. Any dog or cat adopted from the center must be spayed or neutered, microchipped, and vaccinated against rabies. Adoption of animals previously unvaccinated against rabies shall not be allowed if a domestic case of rabies is confirmed in the community and the director imposes a rabies quarantine.

2. If any impounded animal, other than a dog or cat, is unclaimed by the owner, the animal shall be held for such time as the veterinary officer deems reasonable, considering the animal's probable value, conditions of health, and suitability for use. Upon expiration of such reasonable time he may offer the animal for sale or adoption to the city zoo or any animal welfare organization, or may have it humanely destroyed.

G. Any animal impounded and suffering from serious injuries may be humanely destroyed after reasonable efforts to determine ownership have failed. Any impounded animal who is in severe, unremitting pain and symptomatic animals with suspected cases of communicable disease or a suspected case of rabies, as determined by the veterinary officer, shall be euthanized without delay.

H. Animals may be offered for adoption, transferred to an animal welfare organization or euthanized before the end of the required holding period if upon notification of impoundment of the animal the owner states he does not wish to redeem the animal and subsequently in writing releases the animal to the sole jurisdiction of the program.

I. The owner of an animal impounded or quarantined and not redeemed within the required holding period shall be responsible for all associated fees (impoundment, daily handling, euthanasia) whether such animal is claimed or not.
(Ord. 16807 §§ 4 (part), 15, 2007; Ord. 16229 § 1 (part), 2006)
(Ord. No. 17428, § 17, 10-5-2010/eff. 1-1-2011; Ord. No. 17635, § 12, 8-30-2011; Ord. No. 18472, § 7, 2-23-2016)

7.16.030 Fees.

A. Impoundment and daily handling fees are established and shall be charged according to animal classification, as follows:

1. Class A—Includes dogs, cats and ferrets; and exotic animals NOT requiring capture by department personnel;

2. Class B—Includes sheep, lambs, pigs, sows, goats, calves, foals and animals of same approximate size and weight as those specifically listed as Class B animals;

3. Class C—Includes cattle, horses, ponies, mules and animals of the same approximate size and weight as those specifically listed as Class C animals;

4. Class D—Exotic animals requiring capture by department personnel.

B. The department may establish vaccination, microchipping, adoption and other services relating to the health and safety of animals and the return of animals to their owners or to new owners, conduct clinics for the public to provide such services, and charge the established fees for such services.

C. The established fee will be charged for animal delivery service requested by the owner of an animal when the animal has been previously redeemed at the center.

D. Fees for all registrations and permits issued under this chapter are established and shall be charged on an annual basis, unless otherwise specifically provided in this title.

E. Any dog, cat or ferret redeemed by or released from quarantine or impoundment to an owner shall be required to meet the vaccination, registration and microchip requirements of this title prior to release. If vaccination, registration or microchipping is performed at the center the established fees for such services shall be paid prior to the release.

F. Dog or cat traps shall be made available to any adult resident of the City of El Paso at no charge. By borrowing a trap, each resident hereby agrees:

1. That all traps will be returned no later than the fifth day after pick-up or delivery of the trap;

2. Cats shall only be trapped for the purposes of trap-neuter-return or if the cat is injured or sick;

3. The program is entitled to reimbursement for the full replacement cost of the trap should it not be timely returned; and

4. To pay the established fee for the City to deliver a trap to a member of the public upon that person's request. (Ord. 16229 § 1 (part), 2006) (Ord. No. 17428, § 18, 10-5-2010/eff. 1-1-2011; Ord. No. 18472, § 8, 2-23-2016)

Chapter 7.20

QUARANTINE

Sections:

7.20.010 Ordering of quarantine.

7.20.020 Rabies quarantine—Confinement—Disposition.

7.20.010 Ordering of quarantine.

The director, upon receiving notification from the owner, victim, a physician or other complainant that any animal, except those classified as low risk, is involved in an animal-to-human bite incident, shall order the quarantine of the animal causing the bite. Upon issuing the order for quarantine, the rules provided for in this chapter for quarantine shall be enforced and every person, to whom such order is shown or has actual knowledge thereof, shall obey all requirements of the quarantine. (Ord. 16807 § 16, 2007: Ord. 16229 § 1 (part), 2006)
(Ord. No. 17635, § 13, 8-30-2011)

7.20.020 Rabies quarantine—Confinement—Disposition.

A. Every animal that bites a human or other animal, or has rabies or is under suspicion of having rabies, shall be immediately confined by the owner, who shall promptly notify the program of the place where such animal is confined and the reason therefor. The owner shall not permit such animal to come in contact with any other person or animal.

B. Every animal that has been bitten by another animal shall be immediately confined by the owner who shall promptly notify the program of the place where such animal is confined and the reason therefor. Confinement shall continue until release of the animal by the program. (Ord. 16229 § 1 (part), 2006)

Chapter 7.24

LIVESTOCK AND OTHER ANIMALS

Sections:

7.24.010 Permits—Livestock.

7.24.020 Other animals—Restrictions—Permit requirements.

7.24.030 Pens and enclosures—Sanitation requirements.

7.24.040 Keeping horses and cattle—Restrictions.

7.24.050 Additional permit requirements.

7.24.060 Sale of certain baby chickens, ducks, other fowl, rabbits and turtles prohibited.

7.24.070 Coloring of chickens, ducks, other fowl and rabbits unlawful.

7.24.080 Payment of single permit fee.

7.24.090—7.24.130 Reserved.

7.24.010 Permits—Livestock.

A. Except in a farm-ranch district or zoning district in which a stockyard or stable is permitted, no person shall keep any livestock within the city without a permit as herein provided.

B. No person shall keep any livestock within the city in violation of the provisions of the zoning ordinance.

C. Application for any permit required in this section shall be made pursuant to Sections 7.04.090 and 7.24.050 of this Code accompanied by a payment of the established fee for one or more livestock. In addition to the requirements set forth in Sections 7.04.090 and 7.24.050, the application shall state the name and residence of the applicant, the location of the premises where such livestock are to be kept, the acreage and square footage of the area in which they are confined, the number of such livestock, and the kind of enclosure within which they are to be kept. (Ord. 16807 § 3 (part), 2007; Ord. 16229 § 1 (part), 2006)
(Ord. No. 17428, § 20, 10-5-2010/eff. 1-1-2011)

7.24.020 Other animals—Restrictions—Permit requirements.

A. Pigs. No person shall keep any hog, sow or pig within the city except in a farm-ranch district or zoning district in which a stockyard or stable is permitted, nor shall any person keep any hog, sow or pig within the city in violation of any zoning ordinances. However, this section shall not be intended to prohibit the keeping of Chinese or Vietnamese miniature potbellied pigs maintained as household pets.

B. Rabbits and Fowl.

1. Except in a farm-ranch district or zoning district in which a stockyard or stable is permitted or except where kept as household pets in quantities fewer than six, no person shall keep any rabbit or fowl within the city without a permit as herein provided, and where fowl are allowed, no person shall keep more than three roosters.

2. No person shall keep any animal within the city in violation of the provisions of the zoning ordinance.

3. Application for any permit required in this section shall be made pursuant to Sections 7.04.090 and 7.24.050. In addition to the requirements set forth in Sections 7.04.090 and 7.24.050, the application shall state the location of the premises where such rabbits or fowl are to be kept, the acreage and square footage where such rabbits and fowl are to be kept, the number of such rabbits and fowl, including specifically the number of roosters, and the kind of enclosure within which they are to be kept. (Ord. 16807 §§ 3 (part), 4 (part), 17, 2007; Ord. 16229 § 1 (part), 2006)
(Ord. No. 17428, § 21, 10-5-2010/eff. 1-1-2011)

7.24.030 Pens and enclosures—Sanitation requirements.

A. All livestock shall be kept in a secure pen or enclosure, which shall not be less than one hundred feet from any private residence (except that of the owner or person keeping such animals) or any hotel, apartment house, tenement house, hospital, church or school.

B. Fowl and rabbits subject to permitting shall be kept in a secure pen or enclosure that is at least thirty feet from any private residence (except that of the owner or person keeping such fowl or rabbits) or any hotel, apartment house, tenement house, hospital, church or school; provided, the pen or enclosure may be within twenty feet of such buildings if separated therefrom by a public alley and by a solid fence or wall at least six feet high between the pen or enclosure and the alley. In conjunction with issuance of a permit, the veterinary officer may waive the requirements as to distance from dwellings or other buildings if public health is not endangered nor a nuisance is created.

C. The word "kept" as used in this section does not prevent the temporary removal of the animal from the pen for any normal use or purpose, to include the release of homing pigeons from the pen or enclosure for the purpose of supervised flights.

D. All persons keeping permit animals shall comply with the following regulations:

1. Manure shall be removed from pens, stables, yards, cages and other enclosures at least twice weekly and handled or disposed of in such a manner as to keep the premises free of any nuisance.

2. Mound storage of manure between such removals shall be permitted only under such conditions as to protect against the breeding of flies.

3. The feeding of cooked or uncooked vegetables, cooked meat scraps or cooked garbage shall be done only in impervious containers or on an impervious platform. The feeding of uncooked meat scraps or garbage is prohibited.

4. Watering troughs or tanks shall be provided which shall be equipped with adequate facilities for draining the overflow, as to prevent the breeding of flies, mosquitoes or other insects.

5. No material subject to putrefaction shall be allowed to accumulate on the premises, including unconsumed feed materials and they shall be removed and disposed of by means approved by the veterinary officer.

6. All permit animals shall be kept in compliance with Section 7.08.050, standards for animal care. (Ord. 16229 § 1 (part), 2006)

7.24.040 Keeping horses and cattle—Restrictions.

A. Except in a farm-ranch district, or zoning district in which a stockyard or stable is permitted, no person shall keep an equine or bovine on any premises the overall area of which is less than one-third of an acre for each equine or bovine kept, nor keep more equines or bovines than can be cared for under sanitary conditions and not create a public nuisance and in no event exceed the permitted number of adult equine or bovine, and their foals or calves up to six months of age.

B. The number of equine or bovine permitted shall not exceed one adult per one-third acre for the first acre, one adult per one-half acre for the second acre, and two adults per acre for each additional acre over two acres of a single tract of land. The persons in lawful possession of the premises, as owner or tenant, may keep thereon equine or bovine belonging to others, but limited to number of equine or bovine on the premises and the area and distance requirements of this section and Section 7.24.030. (Ord. 16229 § 1 (part), 2006)

7.24.050 Additional permit requirements.

A. A permit issued under this chapter may include reasonable conditions, including total number of animals, authorized as determined by the veterinary officer to prevent a nuisance. All conditions of a permit are subject to review and revision by the veterinary officer and the veterinary officer may alter conditions or restrictions of the permit if any investigation indicates any changed conditions or circumstances since the original application.

B. The program shall determine by inspection or otherwise, whether the keeping of animals as proposed in any permit application under this chapter is in violation of any law or ordinance including, but not limited to, any zoning ordinance, and whether the keeping of such animals

will constitute a nuisance. In making such determination, the program shall consider the following factors and be guided by the following standards:

1. The area of the premises on which the animals are to be kept;

2. Whether the immediate neighborhood is residential or other;

3. Whether the zoning of the premises allows the keeping of such animals;

4. Whether the keeping of animals will endanger the public health or cause odors or noises offensive to persons of ordinary sensibilities;

5. Whether the keeping of such animals considering all the circumstances, is likely to endanger persons or property.

C. The veterinary officer shall verify his approval or disapproval of each application submitted pursuant to this chapter and shall issue or refuse the permit accordingly. The permit may include reasonable conditions determined by the veterinary officer to be necessary to prevent a nuisance, such as but not limited to, the number and kind of animals to be kept thereon.

D. Each permit shall be renewed annually by the last day of the month in which the permit was issued the previous year, accompanied by payment of the established fee. If ownership of the place in which the animals are kept is changed, the permit may be changed accordingly upon written verified application and payment of the established fee for amending the permit.

E. After reasonable written notice and opportunity to be heard, the veterinary officer may suspend or revoke any permit issued under this section for violation of this title by the permit holder or his agent or employee; or if conditions arise which could justify denying the permit on an original application he may review and alter conditions or restrictions of the permit if investigation indicates any changes since the original application.

F. Notice of a permit suspension or revocation must be delivered in person or in writing to the permit holder. A determination of suspension or revocation of a permit issued under this section may be appealed to the city manager in accordance with the procedures established in Section 7.04.100 of this Code.

(Ord. No. 17428, § 22, 10-5-2010/eff. 1-1-2011)

Editor's note—Ord. No. 17428, § 22, adopted October 5, 2010, amended § 7.24.050 in its entirety to read as herein set out. Former § 7.24.050, pertained to animal establishments—shows and exhibitions—permits—application—fees, and Ord. No. 16229, § 1 (part), 2006.

7.24.060 Sale of certain baby chickens, ducks, other fowl, rabbits and turtles prohibited.

A. It is unlawful to sell, offer for sale, barter or give away baby chickens, ducks, or other fowl under three weeks old; rabbits under two months old; or viable turtle eggs and live turtles with a carapace (shell) length of less than four inches except as permitted by federal law or regulation, as pets, toys, premiums, or novelties.

B. As used in this section, the term "turtles" includes all animals commonly known as turtles, tortoises, terrapins, and all other animals of the order Testudinata, class Reptilia, except marine species (familes Dermachelidae and Chelonidae).

(Ord. No. 17428, § 23, 10-5-2010/eff. 1-1-2011)

Editor's note—Ord. No. 17428, § 23, adopted October 5, 2010, amended § 7.24.060 in its entirety to read as herein set out. Former § 7.24.060, pertained to animal establishments—shows and exhibitions—permit—required—recordkeeping, and derived from Ord. 16807 §§ 4 (part), 18, 2007; Ord. 16229 § 1 (part), 2006.

7.24.070 Coloring of chickens, ducks, other fowl and rabbits unlawful.

It is unlawful to color, dye, stain or otherwise change the natural color of any chicken, duck, other fowl, or rabbit or to possess for the purpose of sale or to be given away any chicken, duck, other fowl, or rabbit which has been so colored.

(Ord. No. 17428, § 24, 10-5-2010/eff. 1-1-2011)

Editor's note—Ord. No. 17428, § 24, adopted October 5, 2010, amended § 7.24.070 in its entirety to read as herein set out. Former § 7.24.070, pertained to roadside and flea market sales, and derived from Ord. 16807 §§ 2 (part), 18, 2007; Ord. 16229 § 1 (part), 2006.

7.24.080 Payment of single permit fee.

Premises with animals in more than one permit category under this chapter shall be charged

one fee for all permits. Such fee shall be equal to the amount of the highest individual permit fee, which would have been charged if the permits had been separately issued. Permit fees are not to be prorated or refunded.

(Ord. No. 17428, § 25, 10-5-2010/eff. 1-1-2011)

Editor's note—Ord. No. 17428, § 25, adopted October 5, 2010, amended § 7.24.080 in its entirety to read as herein set out. Former § 7.24.080, pertained to animal litter permit, and derived from Ord. 16229 § 1 (part), 2006.

7.24.090—7.24.130 Reserved.

Editor's note—Ord. No. 17428, § 26, adopted October 5, 2010, repealed §§ 7.24.090—7.24.130, which pertained to sale of certain baby chickens, ducklings, other fowl, rabbits and turtles prohibited; coloring certain baby chickens, duckings, other fowl and rabbits unlawful; payment of single permit fee; severability; fees and derived from Ord. 16229 § 1 (part), 2006.

Chapter 7.28

ANIMAL SHELTER ADVISORY COMMITTEE*

*Editor's note—Ord. No. 019779, § 2, adopted Aug. 19, 2025, repealed ch. 7.28, §§ 7.28.010—7.28.060, which pertained to animal shelter advisory committee and derived from Ord. 17039, §§ 1—7, adopted Dec. 9, 2008; Ord. No. 17507, § 1, adopted March 8, 2011; Ord. No. 17635, § 14, adopted Aug. 30, 2011; Ord. No. 17746, §§ 2, 3, 4, 5, 6, 7, adopted March 6, 2012; Ord. No. 19282, § 10, adopted Jan. 19, 2022; and Ord. No. 019452, § 1, adopted March 28, 2023.

Chapter 7.30

RESERVED*

*__Editor's note__—Ord. No. 17746, § 9, adopted March 6, 2012, repealed Ch. 7.30, which pertained to animal welfare advisory committee and derived from Ord. 17038, §§ 1—7, 12-9-2008, eff. 2-1-2009; Ord. No. 17508, § 1, 3-8-2011, eff. 4-1-2011; Ord. No. 17635, § 15, 8-30-2011.

Chapter 7.50

DEPARTMENT OF ANIMAL SERVICES*

Sections:

7.50.010 Creation and purpose of the Department of Animal Services.

7.50.020 Staffing of the Department of Animal Services.

7.50.030 Effective date.

7.50.010 Creation and purpose of the Department of Animal Services.

A. There is hereby established the Department of Animal Services in the City of El Paso, which shall generally provide for the protection and regulation of companion animals and other animals in the City and within other areas in the County of El Paso in which the employees working in the department are authorized to act.

B. The primary function of the department shall be to provide animal related regulatory services meant to support the well-being of companion animals and other animals living in the City, to include services for the payment of fees; the issuance and revocation of licenses and permits; ordinance, statutory and other regulatory enforcement, including inspections of premises and animals' living conditions; to provide regulations by which the transmission of rabies to human beings and domestic animals can be prevented and controlled in the City; to reduce the number of unwanted and stray dogs and cats in the City; to encourage responsible animal ownership; to protect the citizens' public health, safety and welfare; and to generally perform duties and services relating to areas of animal related concerns as to be determined by the City Manager.
(Ord. No. 18471, § 2, 2-23-2016)

7.50.020 Staffing of the Department of Animal Services.

A. The department shall be staffed by a department director and such other appropriate positions as are authorized by City Council or established in accordance with a process established by a City budget resolution.

B. The status of the department director shall, under the City Charter and system of departmental operations, be a department director and hold an unclassified position under Section 6.2-2 H of the City Charter.

C. In conformity with the City Charter, the City Council delegates its authority to appoint the department director to the city manager.

D. The department director shall be responsible for the performance of duties as assigned by other ordinances of the City, provided however, that the City Manager may reassign such duties to other departments and staff, as he deems appropriate.
(Ord. No. 18471, § 3, 2-23-2016)

7.50.030 Effective date.

A. This ordinance and the creation of Chapter 7.50 of this City Code shall be effective on February 23, 2016.

B. On and after February 23, 2016, the City Manager and his designees are authorized to administratively set up and create appropriate administrative processes for the implementation of the department, to include establishing appropriate budgets and job classifications for the employees within the department. The City Manager and his designees are authorized to make appropriate budget transfers, and to take the necessary steps for the hiring and compensation of all necessary personnel, to enable the department to be fully functional on March 15, 2016.

C. The department shall begin operations and the provision of its services on March 15, 2016.
(Ord. No. 18471, § 4, 2-23-2016)

***Editor's note**—Ord. No. 18471, § 1, adopted Feb. 23, 2016, added ch. 7.50, as set out herein.

Title 8

(RESERVED)

Title 9

HEALTH AND SAFETY

Chapters:

9.02	Department of Public Health
9.04	Solid Waste Management
9.08	Junked Vehicles
9.10	Mulberry Trees
9.11	Tree Care
9.12	Food and Food Handling Establishments
9.16	Nuisances
9.20	Social Host Accountability Ordinance
9.24	Mosquito Control
9.28	Rat Control
9.32	Reserved
9.36	Air Quality
9.38	Reserved
9.39	Alternative Fuels
9.40	Noise
9.44	Reserved
9.48	Swimming Pools and Spas
9.50	Public and Workplace Smoking Restrictions
9.52	Fire Prevention Code
9.80	Water Wells
9.84	Miscellaneous Health Regulations
9.85	Emergency and Transfer Ambulance Services

Chapter 9.02

DEPARTMENT OF PUBLIC HEALTH

Sections:

9.02.010 Creation and purpose of the department of public health.

9.02.020 Staffing of the department of public health.

9.02.030 Effective date.

9.02.040 Fees—Clinics and laboratory.

9.02.010 Creation and purpose of the department of public health.

A. There is hereby established the Department of Public Health in the City of El Paso, which shall generally provide for the protection of the public health of the residents of the city and within other areas in the county in which the employees working in the department are authorized to act.

B. The primary function of the department shall be the performance of public health functions, including the provision of health related regulatory services, by providing appropriate services, to include services for the payment of fees; the issuance and revocation of licenses and permits; ordinance, statutory and other regulatory enforcement; including inspections of premises and equipment; and to generally perform duties and services relating to areas of public health concerns as to be determined by the city manager. (Ord. 16773 § 2, 2007)
(Ord. No. 17634, § 1, 8-30-2011)

9.02.020 Staffing of the department of public health.

A. The department shall be staffed by a department director and such other appropriate positions as are authorized by city council.

B. The status of the department director shall be as provided in Section 121.033, Texas Health and Safety Code, and shall, under the city Charter and system of departmental operations, be a department director and hold an unclassified position under Section 6.2-2 H of the city Charter.

C. As permitted by Section 121.033(c), Texas Health and Safety Code, and in conformity with the city Charter, the city council delegates its authority to appoint the department director to the city manager, and to approve the director's appointment of a health authority, in the event that the director is not a physician.

D. The city manager shall negotiate and establish the terms and conditions of the compensation paid to a separate health authority for the services provided. (Ord. 16773 § 3, 2007)

9.02.030 Effective date.

A. This chapter and the creation of this chapter shall be effective on November 19, 2007.

B. On and after November 19, 2007, the city manager and his designees are authorized to administratively set up and create appropriate administrative processes for the implementation of the department, to include establishing appropriate budgets and job classifications for the employees within the department. The city manager and his designees are authorized to make appropriate budget transfers, and to take the necessary steps for the hiring and compensation of all necessary personnel, to enable the department to be fully functional on January 1, 2008.

C. The department shall begin operations and the provision of its services on January 1, 2008. (Ord. 16773 § 4, 2007)

9.02.040 Fees—Clinics and laboratory.

A. The department is authorized to charge fees for services provided by its medical, dental, and communicable disease control and prevention clinics, and laboratory. Such fees shall be for the services listed and identified in the adopted budget resolution for the current fiscal year or by other appropriately adopted resolution by the city council. The director of the department of public health

is authorized to adjust said fees for services based on any changes that may be made to the Medicaid reimbursement rate.

B. The fees to be charged shall be charged for all services provided to a patient seeking diagnosis and treatment. Fees shall not apply to contact investigations.

C. For any investigation or inspection which is not a part of a regular license or permit program, whether during regular duty hours or at a time other than regular duty hours, the fee shall be identified in the adopted budget resolution for the current fiscal year or other appropriately adopted resolution by the city council. Said fee may be in addition to any other required fees.

D. The director of the department of public health is authorized to adjust fees for services based on any discounts that apply based on the Federal Poverty Income Guidelines in any of the clinics for any of the services offered by the department. In order to apply a discounted fee that is not described in 9.02.040 A. of the El Paso City Code, the director must receive from a person requesting service in a department clinic, proof of income, proof of residency in the city or county, as applicable, and two instruments issued by a state or national government or by a subdivision of either. (Ord. No. 17163, § 1, 8-11-2009; Ord. No. 17334, § 1, 5-25-2010; Ord. No. 18960, § 1, 8-20-2019)

Chapter 9.04

SOLID WASTE MANAGEMENT*

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***Editor's note—**Ord. No. 17380, § 1, adopted August 24, 2010, effective September 1, 2010 except noted within, amended chapter 9.04 in its entirety to read as herein set out. Former chapter 9.04, §§ 9.04.010—9.04.440, 9.04.500—9.04.520, pertained to similar subject matter, and derived from Ord. 16564 § 1(part), 2007; Ord. 16618 §§ 1, 2, 2007; Ord. 16812 §§ 1(part), 5, 6, 2007; Ord. No. 17298, §§ 1—10, 3-23-2010.

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Article I. General Provisions

9.04.010 Creation and purpose of department.

The city is responsible for public health, cleanliness and sanitation in El Paso. The purpose of this chapter is to provide for protection of the health, safety and welfare of the residents of the city by prescribing minimum standards for the generation, storage, collection, transportation and disposal of solid waste and related matter, by providing for the issuance of permits to persons engaging in those activities, by providing for the payment of fees, and by providing for enforcement techniques, including inspections of premises and equipment, the revocation of permits and the issuance of citations. The department of environmental services was created to carry out this purpose as well as to oversee and perform duties and services relating to areas of environmental concerns, including ordinance, statutory and other regulatory enforcement by the director and his designees and by the employees in the code enforcement division of the department, who shall also have enforcement authority as authorized and provided in this Code; and to generally perform duties and services relating to areas of public health, animal related regulatory services, cleanliness and sanitation concerns as to be determined by the city manager. In partial furtherance of the purpose discussed herein, curbside recycling reduces the amount of refuse sent to landfills.

The director of the department or appointee by the director shall have the authority to establish a policy related to the need for safe access (NFSA) for residential properties abutting a private street or alley and to require such property owner or citizen of the City of El Paso to adhere to that policy or shall be required to secure solid waste collection service from a permitted hauler other than the department to promote greater safety and improved service to the citizens of El Paso in the collection of solid waste and recyclables at residential properties throughout the City of El Paso.

(Ord. No. 17380, § 1, 8-24-2010; Ord. No. 17634, § 2, 8-30-2011; Ord. No. 19166, § 1, 4-13-2021)

9.04.020 Definitions.

As used in this chapter the following words, terms, and phrases shall have the following meanings, except where the context clearly indicates a different meaning:

1. "Animal waste" means any solid waste, such as litter, feces, feathers and coat clippings, from the breeding, raising, containing, maintaining or grooming of animals at places of residence, stables, kennels, pet pens, chicken coops, or other places of a similar nature. Animal waste shall not include waste generated from health care-related facilities such as veterinary establishments. Animal waste shall not include dead animals.

2. "Approved container" means a container that possesses each of the following criteria: 1) it is constructed of wood, metal, heavy-gauge steel wire mesh or other material that does not allow the construction or demolition material to become blown away, litter the construction or demolition site's premises or surroundings, impact the storm water system, or otherwise become a nuisance to other property owners; 2) its sides are completely enclosed; 3) it is of sufficient dimensions to ensure that the construction or demolition material will not spill out of or be blown out of the top of the container when said material is placed inside said container.

3. "Authorized municipal solid waste facility" means any municipal solid waste facility authorized by the Environmental Protection Agency, for processing, storing, or disposing of municipal solid waste, including construction or demolition waste, generated within the city.

4. "Bulk waste" means municipal solid waste composed of materials not easily containerized in a cart such as, but not limited to, appliances, brush, carpet, furniture, pallets and other large items.

Bulk waste shall exclude animal waste, dead animals, construction or demolition material, and excluded waste.

5. "Cart" means any watertight plastic receptacle approved by the department for the purpose of containing municipal solid waste or program recyclable materials that is equipped with wheels and an attached tight-fitting lid designed or intended to be mechanically or manually dumped into a garbage collection truck.

6. "Citizen collection station" means a site designated by the department for the drop-off of municipal solid waste and/or recyclable material, by residential property occupants.

7. "Collection" means as defined in 30 TAC § 330.3.

8. "Commercial property" means all improved property other than a residential property.

9. "Composting" means as defined in 30 TAC § 330.3.

10. "Construction or demolition material" means material resulting from construction or demolition projects; includes all materials that are directly or indirectly the by-products of construction or work or that result from demolition of buildings and other structures, including, but not limited to, paper, cartons, plastic buckets and drums, gypsum board, wood, rebar, aluminum or vinyl siding, excelsior, rubber, plastics, concrete, asphalt, corrugated cardboard, roofing tiles, asphalt shingles, tar paper, and floor tiles.

11. Reserved.

12. "Container" means a dumpster or compactor.

13. "Compactor" means a watertight receptacle, regardless of its size, which has a compaction mechanism, whether stationary or mobile, equipped with closeable doors intended to be loaded onto a motor vehicle.

14. "Curbside" means the area located within three feet of and parallel to the edge of the city street or alleyway that provides primary access to the residential property, or designated by the department.

15. "Department" means the department of environmental services.

16. Reserved.

17. "Director" means the director of the department of environmental services or his designee or other designees of the city manager.

18. "Discard" means as defined in 30 TAC § 330.3.

19. "Disposal" or "dispose" means the deposit of any solid waste at a municipal solid waste facility.

20. "Dumpster" means a watertight receptacle, with a capacity of approximately two cubic yards up to approximately eight cubic yards, equipped with tight-fitting lid and designed or intended to be mechanically dumped into a loader-packer type truck.

21. "Duplex" means two dwelling units within an improved property sharing at least one common wall or included under the same roof structure which is arranged, designed or used as residential occupancy and does not include mobile home.

22. "Established fee" means the fee that is authorized in this chapter which is set in the amount identified in the adopted budget resolution for the current fiscal year or by other duly adopted resolution of the city council.

23. Reserved.

24. "Excluded waste" means solid waste not accepted by any authorized municipal solid waste facility as posted at such authorized municipal solid waste facility.

25. "Garbage" means as defined in 30 TAC § 330.3.

26. "Generator" means as defined in 30 TAC § 330.3.

27. "Handbill" means any printed or written matter, any sample or device, dodger, circular, leaflet, pamphlet, paper, booklet, newspaper with or without inserts or any other printed or otherwise reproduced original or copies of any matter of literature:

a. Which advertises for sale any merchandise, product commodity, or thing;

b. Which directs attention to any business or mercantile or commercial establishments or other activity, for the purpose of either directly or indirectly promoting the interest thereof by sales;

c. Which directs attention to or advertises any meeting, theatrical performance, exhibition,

or event of any kind, for which an admission fee is charged for the purpose of private gain or profit; or

d. Which, while containing reading matter other than advertising matter, is predominantly and essentially an advertisement, and is distributed or circulated for advertising purposes, or for the private benefit and gain of any person so engaged as advertiser or distributor.

28. "Hauler" means a person other than a self-transporter who provides collection of solid waste or recyclable materials within the city.

29. Reserved.

30. "Hauler permit" means the authorization of a hauler by the department for the privilege to provide collection of solid waste and/or recyclable materials within the city and/or delivery of solid waste to an authorized municipal solid waste facility during the term of such permit and subject to all the terms and conditions imposed by this chapter and related laws and other ordinances and resolutions of the city.

31. "Household hazardous waste" means as defined by 30 TAC § 330.402.

32. "Illegal dumping" means the offense as defined by Texas Litter Abatement Act.

33. "Industrial solid waste" means as defined in 30 TAC § 330.3.

34. "Improved property" means all properties located within the city which there is erected a structure intended for continuous or periodic habitation, occupancy or use by persons that generate or are capable of generating solid waste.

35. "Landfill" means as defined in 30 TAC § 330.3.

36. "Litter" means as defined in Texas Litter Abatement Act; garbage, rubbish and refuse; decayable waste and non-decayable solid waste.

37. "Medical waste" means as defined in 30 TAC § 330.3.

38. "Mixed-use property" means an improved property containing both residential properties and commercial properties, where the municipal solid waste generated at such improved property cannot be readily separated by source of generation.

39. "Mobile home" means living quarters equipped and designed for sleeping and eating and which may be moved from one place to another over a public roadway by being pulled behind a motor vehicle.

40. "Mobile home property" means an improved property equipped or occupied by one mobile home.

41. "Municipal solid waste" means as defined in 30 TAC § 330.3 excluding animal waste and excluded waste.

42. "Municipal solid waste facility" means as defined in 30 TAC § 330.3.

43. "Nuisance" means as defined in 30 TAC § 330.3.

44. "Occupant" means any person occupying or having possession of an improved property or any portion thereof.

45. "Owner" means any person who, alone or with others, has title or interest in an improved property with or without accompanying actual possession thereof, and including any person who as agent, or as executor, administrator, trustee or guardian of an estate, has charge, care or control of any improved property.

46. "Parking lot" means any area at a commercial or mixed-use property intended to allow space for vehicle parking, regardless of size or location. The area may be graded, leveled, paved, and/or graveled, and may or may not be demarcated to identify individual parking spaces. This definition does not include metered parking operated by the city and does not include parking areas part of a city street or right-of-way.

47. "Permitted hauler" means hauler holding a valid hauler permit.

48. "Permitted vehicle" means a vehicle or trailer used by a permitted hauler within the city for the purpose of collecting solid waste and/or recyclable materials generated within the city.

49. Reserved.

50. "Processing" or "processed" means as defined by 30 TAC § 330.3.

51. "Program recyclable materials" means recyclable materials defined by the department as part of the residential recycling program.

52. "Quadriplex" means four (4) dwelling units within an improved property under the same roof structure, which are arranged, designed or used as residential occupancy and does not include a mobile home.

53. "Recyclable material" means as defined by 30 TAC § 330.3.

54. "Recycling" means as defined by 30 TAC § 330.3.

55. "Recycling facility" means a facility that either has the required authorization from Texas Commission on Environmental Quality, or equivalent state agency, for processing of recyclable materials and is in compliance with local, state, and federal laws.

56. "Residential property" means all improved property which is used, or is capable to be used as a single-family dwelling, duplex, triples, quadriplex or mobile home property, and does not include improved property used primarily as a commercial property or mixed-use property.

57. "Residential recycling program" means the collection of recyclable materials, as defined by the department, from residential properties.

58. "Retail or service establishment" means a business operation located on an improved property that has as its primary purpose the selling of goods, merchandise and/or providing services to members of the public from a fixed location, such as a shop, store or building complex. Examples of retail or service establishments include, but are not limited to restaurants and bars, gas stations, convenience stores, and shopping centers.

59. "Roll-off" means any watertight receptacle, with a capacity of approximately ten cubic yards up to approximately forty cubic yards, intended to be loaded onto a motor vehicle.

60. "Rubbish" means as defined by 30 TAC § 330.3.

61. "Scavenging" means as defined by 30 TAC § 330.3.

62. "Self-transporter" means the following:

A. Generator, who directly, without use of a hauler, transports solid waste generated by the generator to a municipal solid waste facility or recyclable materials generated by the generator to a recycling facility; utilizing the following methods of transport:

1. A factory-unmodified class 1, 2, or 3 truck, based on US DOT Federal Highway Administration Vehicle Inventory and Use Survey standards; or

2. A vehicle as described in 61.A.1. above, with an attached single or double axle, non-dump trailer.

B. A person conducting services on behalf of a generator, including, but not limited to building contractors, home repairmen/handymen, landscapers, or roofers, at that generator's location of business or residence, may be considered a self-transporter of solid waste or recyclable materials generated as a result of such service, provided the vehicle limitations specified in Subsections 61.A.1. and 61.A.2. of this definition are met.

63. "Shopping cart" means any mobile, wheeled receptacle provided by a retail or service establishment to its customers to use while customers are conducting business at said establishment.

64. "Sidedoor" means a collection location for a municipal solid waste and/or program recyclable materials cart other than curbside. Sidedoor can be at the front, or side of a residential property for collection of municipal solid waste and program recyclable materials. The department shall designate the location for sidedoor collection of municipal solid waste and program recyclable materials.

65. "Single-family dwelling" means a single dwelling unit within an improved property designed for residential occupancy which is arranged, designed or used as living quarters.

66. "Solid waste" means as defined by 30 TAC § 330.3.

67. "Special waste" means as defined by 30 TAC § 330.3.

68. "Storage" means as defined by 30 TAC § 330.3.

69. "Triplex" means three (3) dwelling units within an improved property under the same roof structure, which are arranged, designed or used as residential occupancy and does not include a mobile home.

70. "Weeds and vegetation" means grass, weeds, or uncultivated plants that are on average greater than twelve inches in height.
(Ord. No. 17380, § 1, 8-24-2010; Ord. No. 17471, §§ 1, 2, 12-21-2010; Ord. No. 17604, § 1, 7-19-2011; Ord. No. 18123, § 1, 2-4-2014; Ord. No. 18148, § 1, 4-1-2014; Ord. No. 18239, § 1, 9-2-2014; Ord. No. 019541, § 1, 9-26-2023)

9.04.030 Applicability.

A. Except where expressly provided otherwise in this chapter, this chapter shall apply to the solid waste and recyclable materials generated, collected, disposed, processed, and/or otherwise found in the area under jurisdiction of the city as presently or hereafter established.
(Ord. No. 17380, § 1, 8-24-2010; Ord. No. 18123, § 1, 2-4-2014; Ord. No. 18148, § 1, 4-1-2014)

9.04.040 Purpose.

The purposes of this chapter include, but are not necessarily limited to, the following:

A. To protect the health, safety, and general welfare of the city and the city residents;

B. To provide environmentally sound, cost-efficient solid waste management;

C. To provide for the safe and proper handling of solid waste generated, stored, collected, and/or disposed of within the city;

D. To develop data to ensure sufficient disposal capacity and/or recycling programs for solid waste and recyclable materials generated, stored, collected, disposed, processed, and otherwise found within the city;

E. To deter illegal dumping;

F. To facilitate conservation of vital natural resources;

G. To protect against risk that current municipal solid waste facilities become unable to accept municipal solid waste generated within the city;

H. To encourage and enforce recycling programs, including source separation at point of generation, throughout the city; and

I. To provide a convenient and effective means of financing the city's solid waste services.
(Ord. No. 17380, § 1, 8-24-2010)

Article II. Municipal Solid Waste and Recyclable Materials Generated at Residential Properties

9.04.050 Applicability.

This article shall apply to:

A. Owners of residential properties in the city, where an owner is also the occupant;

B. Owners of residential properties in the city, where the residential property is vacant;

C. Occupants of residential properties in the city, where an owner is not an occupant;

D. Self-transporters of municipal solid waste and recyclable materials generated at residential properties in the city; and

E. Haulers of municipal solid waste generated at residential properties in the city.
(Ord. No. 17380, § 1, 8-24-2010)

9.04.060 Accumulation and storage.

Municipal solid waste and recyclable materials generated at residential properties applicable to this article shall be accumulated and stored in compliance with the following provisions:

A. Municipal solid waste. Excluding bulk waste, municipal solid waste shall be contained in secured, odor, and vector-tight plastic bags, and stored in carts. Municipal solid waste shall not be accumulated or stored outside of carts, and cart lids shall remain closed at all times when not adding municipal solid waste to carts.

B. Recyclable materials. Program recyclable materials shall be stored, uncontainerized (with the exception of shredded paper), in carts desig-

nated by the city for collection of program recyclable materials. Program recyclable materials shall not be accumulated or stored outside of carts, and cart lids must remain closed at all times when not adding program recyclable materials to carts. Recyclable materials other than program recyclable materials may only be accumulated and stored at the residential property if in accordance with federal, state and local laws.

C. Prohibited waste. The following waste and materials are prohibited from being placed for collection in carts:

1. Household hazardous waste; and

2. High-density waste or material, including, but not limited to sand, gravel, bricks, rock, concrete and tree stumps.

(Ord. No. 17380, § 1, 8-24-2010)

9.04.070 Collection provider.

Excluding self-transporters, the city shall be the exclusive hauler of municipal solid waste and program recyclable materials generated at residential properties; however, an owner or occupant of residential properties containing a triplex or quadriplex shall have the option to utilize a permitted hauler other than the city as collection provider.

(Ord. No. 17380, § 1, 8-24-2010; Ord. No. 17604, § 2, 7-19-2011)

9.04.080 Disposal provider.

The self-transporter or the permitted hauler shall deliver municipal solid waste to an authorized municipal solid waste facility.

(Ord. No. 17380, § 1, 8-24-2010; Ord. No. 18123, § 2, 2-4-2014)

9.04.090 Schedule for collection.

Occupants of residential properties shall, at a minimum, receive the following collections, on the day designated by the director:

A. Collection once per week of one municipal solid waste cart;

B. Collection on a frequency to be designated by the director for one (1) program recyclable materials cart; and

C. On-call collection of bulk waste upon notification and payment of applicable established fees to the department.

Carts and bulk waste shall be placed at the location for collection, as specified in Section 9.04.100, after 6:00 p.m. on the day preceding the designated collection day and prior to 5:00 a.m. on the designated collection day. Carts shall not be left in the curbside area after 7:00 p.m. on the designated collection day.

(Ord. No. 17380, § 1, 8-24-2010)

9.04.100 Location for collection.

Municipal solid waste and program recyclable materials carts and bulk waste shall be placed for collection with the following requirements:

A. Requirements and location of collection at residential properties. Carts approved by the director for collection of municipal solid waste and program recyclable materials shall be placed for collection in accordance with the following rules:

1. Only municipal solid waste generated at a residential property shall be placed in municipal solid waste carts assigned to such residential property;

2. Only program recyclable materials generated at a residential property shall be placed in program recyclable materials carts assigned to such residential property;

3. Each cart including contents shall not exceed one hundred and fifty pounds;

4. Municipal solid waste shall be contained in secured, odor, and vector-tight plastic bags, and stored in carts and/or containers designated by the director for the collection of municipal solid waste. Municipal solid waste shall not be accumulated or stored outside of carts and/or containers, and cart and/or container lids must remain closed at all times when not adding municipal solid waste to carts and/or containers; and

5. Bulk waste shall be placed for collection in accordance with the following rules:

a. Brush that is individually placed or bundled for collection, shall not be more than five feet in length or sixty pounds in weight; and

b. Bulk waste placed for collection shall be in conformity with any and all other acceptance policies established by the director.

6. Excluding collection locations approved for sidedoor and alley collection, carts and bulk waste shall be placed at the curbside in accordance with the following rules:

a. Carts shall be placed at the curbside of the residential property with the lids opening toward the street; the placing of carts on neighboring property is prohibited;

b. Carts and bulk waste shall be placed no closer than three feet from other carts and bulk waste along the curbside;

c. Carts and bulk waste shall not be placed within three feet from any permanent, fixed objects, i.e., street light poles, mail boxes, utility boxes, cable television boxes, and other public or private property, and five feet from any vehicles;

d. Carts and bulk waste shall not be placed in such a manner as to create a pedestrian hazard, impair the use of the sidewalk, or interfere with vehicular traffic; and

e. Where a residential property is located on a street corner, carts and bulk waste shall only be placed along the curbside of the street address of the residential property; the placing of carts and bulk waste along the curbside perpendicular to the residential property's street address is prohibited.

7. Alley collection service shall be limited to routes designated by the traffic engineer or director as indicated below:

Block(s)	Even	Odd
6500 block of Hoop St.	X	X
6400 block of Toivoa Pl.	X	
6500 block of Toivoa Pl.		X
1400—1500 blocks of Mundy Dr		X
1500 block of Upson Dr.		X
1200 block of Prospect St.	X	X
1000 block of Prospect St.		X
1400—1600 blocks of Hawthorne St.	X	
1400 block of Hawthorne St.		X
1300—1400 blocks of Fewel St.	X	
500 block of Fewel St.	X	
400—500 blocks of Fewel St.		X
1200—1300 blocks of Randolph Dr.		X
500 block of Los Angeles Dr.		X
1100—1200, 1400 blocks of El Paso St.		X
1300 block of N. Oregon St.	X	
1600 block of N. Mesa St.		X
200 block of W. Rio Grande Ave	X	
500—600 blocks of W. Yandell Dr.	X	
900 block of Miramon Ave.		X
600—800 blocks of Upson Dr.		X
600 block of Stewart Dr.	X	
700—1000 block of Upson Dr.	X	
200 block of Porfirio Diaz St.	X	
1200, 1600-1700 blocks of Wyoming Ave.	X	
1100—1500 blocks of W. Yandell Dr.	X	X
1100—1500 blocks of E. Yandell Dr.	X	X
1700—1800 blocks of Montana Ave.	X	
1100 block of E. River Ave.		X
1000—1100 blocks of E. River Ave.	X	
1000—1100 blocks of E. California Ave.	X	
1100 block of E. Nevada Ave.	X	
1600—1800 blocks of Raynolds St.		X
4500—4700 blocks of Cumberland Ave.		X
1700—1800 blocks of Radford St.	X	
12800—12900 blocks of Hueco Sands Cir.		X

Block(s)	Even	Odd
12800 block of Hueco Mine Dr.	X	X
12800 block of Hueco Cave Dr.		X
12800 block of Hueco Hill Dr.	X	
4000 block of Hueco Valley Dr.	X	
12900 block of Hueco Cave Dr.	X	X
12900 block of Hueco Mine Dr.		X
1500 block of N. Kansas St.		X
1000 block of Wyoming Ave.	X	X
400—600 blocks of Canal R.	X	
1800—1900 blocks of Olive Ave.	X	
2000 block of Robert Minnie Pl.	X	X
2000 block of Howard Jones Pl.	X	X
14000 block of Alyssa Marie Dr.	X	X
14000 block of Eastbrook Dr.	X	X
14000 block of Oldenberg Ct.	X	X

8. Carts shall be placed in the alley in accordance with the following rules at the locations designated by the traffic engineer or director in this chapter.

a. Alley collection is limited to solid waste and program recyclable materials generated at a residential property and placed in municipal solid waste carts and program recyclable material carts assigned to such residential property;

b. It shall be the duty of owners, tenants or occupants of the abutting properties to keep the alley way clear of obstructions including intruding or overhanging brush and tree limbs.

c. Carts shall be placed in the alley of the residential property with the lids opening toward the center of the alley; the placing of carts on neighboring property is prohibited;

d. Carts shall be placed no closer than five feet from other carts;

e. Carts shall not be placed within five feet from any permanent, fixed objects, i.e., street light poles, meters, utility boxes, cable television boxes, and other public or private property.

B. Occupants of residential properties may request sidedoor collection from the department. The written request must be submitted annually in conformance with the administrative process designated by the director, and its review, approval and continued eligibility is subject to the following rules:

C. Eligibility and requirements for sidedoor collection.

1. An applicant is eligible to receive sidedoor collection if he meets the following criteria:

a. The applicant is the primary water account holder and has provided written documentation of one of the following:

i. Certification from the Social Security Administration that the applicant for sidedoor collection is the recipient of a social security or supplemental security income disability pension;

ii. Certification from the proper administrative officer that the applicant for sidedoor collection is the recipient of a public disability pension and classified one hundred percent disabled;

iii. Certification from the Veterans Administration that the applicant for sidedoor collection is the recipient of the Veterans Administration disability payments and classified one hundred percent disabled; or

b. The applicant lives alone, and either has a documented persistent medical condition, or is seventy years of age or older and is incapable of transporting his or her municipal solid waste or program recyclable materials cart to the curbside.

2. No more than one municipal solid waste cart and one program recyclable materials cart at any time will be assigned to a residential property receiving sidedoor collection.

3. Approved sidedoor customers must make carts accessible for collection by the department at side or front of residence, and not behind an enclosed fence or gate. The department will not collect carts placed in a back yard or within an en-

closed fence. Following collection, the cart will be replaced in the same or closely approximate location from where it was retrieved.

4. The director shall have the authority to investigate and verify that recipients of sidedoor collection have continued eligibility for sidedoor collection.

5. A person receiving sidedoor collection is not eligible for a discounted refuse fee.

D. Location for collection at the citizen collection station. Occupants of residential properties may utilize the citizen collection stations provided by the department subject to the following rules:

1. An occupant who is the primary water account holder may utilize a citizen collection station when the occupant provides written documentation of the following:

a. Current city water bill; and

b. Photo identification of occupant with same address as city water bill.

2. Occupants may utilize any citizen collection station at a frequency not to exceed the monthly limit set by the director or his designee, as posted at each citizen collection station.

3. Occupants must comply with the citizen collection station waste acceptance policy established by the department and comply with all posted rules at the station.

4. The director shall have the authority to investigate and verify that occupants utilizing citizen collection stations have continued eligibility for this service.

5. Occupants are prohibited from utilizing citizen collection stations for the disposal of any waste or material not generated solely from the occupant's dwelling and residential activities at their residential property.

(Ord. No. 17380, § 1, 8-24-2010; Ord. No. 17471, § 3, 12-21-2010; Ord. No. 019665, § 1, 8-27-2024)

9.04.110 Storage, maintenance, replacement, and ownership of carts.

A. Storage of carts. Carts shall be removed from the curbside by end of designated collection day, as specified in Section 9.04.090. Upon removal of carts from the curbside, carts shall be secured at the residential property in an unobtrusive location and screened to minimize visibility from public streets, sidewalk and adjacent property such as but not limited to the following:

1. In a garage;

2. In an outdoor storage building;

3. On the side of a structure on the property; or

4. At the back of a structure on the property.

Provided however, between designated collection days, carts shall not be stored in a manner that constitutes a nuisance.

B. Ownership of carts. The city owns all carts. owners or occupants of residential properties shall leave all carts at the residential property after the residential property is sold or the owners or occupants move out. Carts may not be transferred to another residential property.

C. Maintenance of carts. For properties occupied or possessed by owners or occupants, carts shall be maintained by occupants of such residential properties in a clean and nuisance free condition. For all other residential properties, carts shall be maintained by owners of such residential properties in a clean and nuisance-free condition.

D. Replacement of carts. In the event a cart becomes damaged or missing, the owner or occupant shall notify the department that repairs to the damaged cart or a replacement cart is required, in a manner conforming to the administrative process. The city personnel may charge the established cart replacement fee.

E. Repossession of recycling carts. The city may repossess a recycling carts if the owner or occupant does not comply with requirements established for the residential recycling program. The city may charge the established repossession fee.

(Ord. No. 17380, § 1, 8-24-2010)

Article III. Solid Waste and Recyclable Materials Generated at Commercial Properties and Mixed-Use Properties

9.04.150 Applicability.

This article shall apply to:

A. Owners and occupants of commercial properties in the city;

B. Owners and occupants of mixed-use properties in the city;

C. Self-transporters of solid waste, other than Class 1 industrial waste, and recyclable materials generated at commercial properties in the city;

D. Self-transporters of solid waste, other than Class 1 industrial waste, and recyclable materials generated at mixed-use properties in the city;

E. Haulers of solid waste, other than Class 1 industrial waste, and recyclable materials generated at commercial properties in the city; and

F. Haulers of solid waste, other than Class 1 industrial waste, and recyclable materials generated at mixed-use properties in the city.
(Ord. No. 17380, § 1, 8-24-2010)

9.04.160 Accumulation and storage.

Solid waste and recyclable materials generated at commercial property and mixed-use property within the city shall be accumulated and stored in compliance with the following provisions:

A. Solid waste. Excluding bulk waste, solid waste shall be contained in carts and/or containers. Cart or container lids shall remain closed at all times when not adding solid waste to the carts or containers. Solid waste, including bulk waste, shall not be stored in a manner that constitutes a nuisance.

B. Recyclable materials. Commercial property and mixed-use owners or occupants are encouraged to participate in recycling. Commercial property and mixed-use property occupants who elect to participate in recycling shall accumulate and store such recyclable materials in accordance with federal, state and local laws.
(Ord. No. 17380, § 1, 8-24-2010)

9.04.170 Collection provider.

A. Excluding self-transporters, owners or occupants of commercial properties and mixed-use properties shall contract with a permitted hauler to collect all solid waste generated at such commercial properties and mixed-use properties.

B. The director of the department of environmental services, or the police chief or his or her designated representative, shall be responsible for the enforcement of this chapter.

C. The director or his or her designated representative shall provide written notice of a violation to the owners or occupants of commercial and mixed-use properties fourteen days before issuing a citation.

D. During the fourteen-day period preceding issuance of the citation, the owners or occupants of commercial and mixed-use properties must submit proof of a current contract with a permitted hauler to collect all solid waste generated or proof of ongoing disposal of solid waste at an authorized municipal solid waste facility to avoid citation.

E. Any person who violates any provision of this chapter shall, upon conviction, be guilty of a Class C misdemeanor and punished by a fine not to exceed two thousand dollars.
(Ord. No. 17380, § 1, 8-24-2010; Ord. No. 019664, § 1, 8-27-2024)

9.04.180 Commercial disposal provider.

Self-transporters and permitted haulers shall deliver all solid waste to an authorized municipal solid waste facility.
(Ord. No. 17380, § 1, 8-24-2010; Ord. No. 18123, § 3, 2-4-2014)

9.04.190 Schedule for Collection.

A written agreement with a permitted hauler for collection by an owner or occupant of commercial properties shall provide, at a minimum for:

A. The owner or occupant must obtain a sufficient number of containers in quantity or storage capacity such that they are not allowed to

overflow with waste or constitute a nuisance and the containers must be collected at least once a month; and

B. On-call collection of bulk waste (as needed).
(Ord. No. 17380, § 1, 8-24-2010; Ord. No. 17471, § 4, 12-21-2010)

9.04.200 Authority to mandate collection.

A. Overflowing carts and/or containers. Excluding bulk waste, solid waste shall be contained in secured, odor, and vector-tight plastic bags, and stored in carts and/or containers designated by the director for the collection of municipal solid waste. Municipal solid waste shall not be accumulated or stored outside of carts and/or containers, and cart and/or container lids must remain closed at all times when not adding municipal solid waste to the cart and/or container.

B. Harborage of vectors or other health hazards. In any instance where the director finds that a cart and/or container requires immediate emptying or replacement due to breeding or harborage of vectors or circumstances creating significant potential for breeding or harborage of vectors, or other health hazards, the city official is authorized to order the owners and/or occupants of such commercial property or mixed-use property to have such condition corrected within twenty-four hours of written notice from the city official.

C. Protection of public health and safety. Evidence of overflowing or uncollected solid waste and for harborage of vectors or other health hazards constitutes evidence that the owner and/or occupant of commercial property or mixed-use property is in violation of 9.04.170, which status allows the city to exercise its option of collecting the solid waste from that property. Prior to the city collecting the solid waste from the commercial property or mixed-use property in violation of 9.04.170, the city shall issue a notice to the owner/occupant of said property that said violation must be corrected within twenty-four hours of delivery of the notice. Failure to comply with the notice shall result in the city collecting the solid waste and for billing the owner/occupant of the property. The owner/occupant remains subject to applicable criminal penalty for continued non-compliance.
(Ord. No. 17380, § 1, 8-24-2010)

9.04.210 Location for collection.

A. All carts and/or containers shall be placed on the owner's commercial or mixed-use property unless the director grants an exception that:

1. Placement of the collection location on the improved property is neither reasonable nor practical; and

2. Placement of the collection location on public right-of-way will not unreasonably interfere with pedestrian or vehicular traffic and will not constitute a hazard or be a visual or other public nuisance, or placement in public right-of-way is necessary during a construction project.

B. When placement of a cart and/or container in a public right-of-way other than an alley is authorized, the owner of the cart and/or container shall pay the established fee for use of such right-of-way.
(Ord. No. 17380, § 1, 8-24-2010)

9.04.220 Storage, maintenance, replacement, and ownership of carts and containers.

A. Maintenance of carts and containers. Haulers from commercial properties and mixed-use properties shall maintain the carts and containers in a clean and nuisance free condition. Owners or occupants of commercial properties and mixed-use properties shall maintain the area surrounding the carts and containers in a clean and sanitary condition, free of litter or any other accumulation of solid waste.

B. Replacement of carts and containers. In the event a cart or container becomes damaged or stolen, the owner or occupant of the commercial property or and mixed-use property shall replace such cart or container if such cart or container is owned by the owner or occupant. For carts and containers not owned by the owner or occupant, the owner or occupant of the commercial prop-

erty or mixed-use property shall notify the permitted hauler for replacement of the cart or container.

C. Cart and container identification. All carts and containers must be identified with the name of the owner or occupant, or permitted hauler providing such carts or containers, or by a paint scheme or decal which is distinctive to the owner or permitted hauler.

(Ord. No. 17380, § 1, 8-24-2010)

Article IV. Construction or Demolition Material

9.04.250 Applicability.

This article shall apply to:

A. Generators of construction or demolition material in the city;

B. Current holders of authorization (such as a building or roofing permit) by city to develop, build, construct or conduct demolition activities; henceforth referred to in this article as "authorized party";

C. Self-transporters of construction or demolition material in the city; and

D. Haulers of construction or demolition material in the city.

(Ord. No. 17380, § 1, 8-24-2010; Ord. No. 17471, § 5, 12-21-2010)

9.04.260 Accumulation and storage.

Construction or demolition waste generated within the city shall be accumulated and stored in compliance with the following provisions:

A. Construction or demolition material. Generators shall accumulate construction or demolition material in roll-offs, dumpsters, approved containers, or completely inside a fully-enclosed building, with the following exceptions:

1. Construction or demolition material produced by demolition that is so large that it cannot reasonably be placed in a single piece into a roll-off, dumpster, approved container or completely inside a fully-enclosed building, without protruding outside said container or building. Such material shall be permitted to remain non-contained, provided potential wind-borne waste or debris is controlled.

2. Rock, concrete, mortar, brick, cinder block, and similar construction or demolition material generated by a contractor at a single property or by a contractor at a group of properties located within a subdivision, are not required to be containerized, unless these materials have the potential to contribute to run-off to the city's storm water conveyance system. These materials may be collected into piles on the ground of the property where such material was generated and removed to a designated or authorized municipal solid waste facility or a recycling facility within seventy-two hours of the completion of construction or demolition work unless otherwise approved by the city manager or designee. Other types of construction or demolition material shall not be commingled with permitted piles of these wastes.

B. Recyclable materials. Generators of construction or demolition material in the city are encouraged to participate in recycling. Generators of construction or demolition material in the city who elect to participate in recycling shall accumulate and store recyclable materials that have been separated from construction or demolition material at the project site in accordance with federal, state and local laws.

(Ord. No. 17380, § 1, 8-24-2010; Ord. No. 17471, § 6, 12-21-2010; Ord. No. 18123, § 4, 2-4-2014; Ord. No. 18239, § 2, 9-2-2014)

9.04.270 Collection provider.

Generators and the authorized party, for a property generating construction or demolition material, shall contract with a permitted hauler to collect all construction or demolition material and recyclable materials generated at such property or they may self-transport as permitted by this chapter. The permitted hauler shall provide the generator or the authorized party a copy of the hauler permit, prior to collection of construction or demolition material.

(Ord. No. 17380, § 1, 8-24-2010; Ord. No. 17471, § 1, 12-21-2010)

9.04.280 Reserved.

Editor's note—Ord. No. 019541, § 2, adopted Sep. 26, 2023, repealed the former § 9.04.280, which pertained to manifest requirement and derived from Ord. No. 17380, adopted Aug. 24, 2010; Ord. No. 17471, adopted Dec. 21, 2010; Ord. No. 18123, adopted Feb. 4, 2014.

9.04.290 Disposal provider.

Self-transporters and permitted haulers shall be responsible for ensuring construction or demolition waste is delivered to an authorized municipal solid waste facility in accordance with this chapter.

(Ord. No. 17380, § 1, 8-24-2010; Ord. No. 17471, § 8, 12-21-2010; Ord. No. 18123, § 6, 2-4-2014)

9.04.300 Schedule for collection.

Generators or the authorized party for a property generating construction or demolition material shall enter into a written agreement with a permitted hauler for collection as according to the following schedule:

A. Sufficient quantity of roll-offs at the project site to ensure that construction or demolition material does not become a nuisance or overfill roll-offs; and

B. Collection of each roll-off at least once every fourteen calendar days.

(Ord. No. 17380, § 1, 8-24-2010; Ord. No. 17471, § 9, 12-21-2010)

9.04.310 Location for collection.

Generators and the authorized party for a property generating construction or demolition material shall place the roll-offs for collection of construction or demolition material on the property generating such construction or demolition material unless an exception is granted by the director. The director may grant an exception to the generator or authorized party for a property generating construction or demolition material, upon the director's determination that:

A. Placement of the collection location on the property generating such construction or demolition material is not safe and feasible; and

B. Roll-off is equipped with adequate reflectors and placed as close to curb as reasonably possible.

When placement of a roll-off in a public right-of-way is authorized, the director shall not require the generator or the authorized party for the roll-off to pay the fee for use of such right-of-way.

(Ord. No. 17380, § 1, 8-24-2010; Ord. No. 17471, § 1, 12-21-2010)

9.04.320 Storage, maintenance, replacement, and ownership of roll-offs.

A. Maintenance of roll-offs. Haulers of roll-offs from properties generating construction or demolition material shall maintain the roll-offs in a clean and nuisance free condition. Generators

material unless an exception is granted by the director. The director may grant an exception to the generator or authorized party for a property generating construction or demolition material, upon the director's determination that:

A. Placement of the collection location on the property generating such construction or demolition material is not safe and feasible; and

B. Roll-off is equipped with adequate reflectors and placed as close to curb as reasonably possible.

When placement of a roll-off in a public right-of-way is authorized, the director shall not require the generator or the authorized party for the roll-off to pay the fee for use of such right-of-way. (Ord. No. 17380, § 1, 8-24-2010; Ord. No. 17471, § 1, 12-21-2010)

9.04.320 Storage, maintenance, replacement, and ownership of roll-offs.

A. Maintenance of roll-offs. Haulers of roll-offs from properties generating construction or demolition material shall maintain the roll-offs in a clean and nuisance free condition. Generators

and the authorized party for a property generating construction or demolition material shall maintain the area surrounding the roll-offs in a clean and sanitary condition, free of litter or any other accumulation of solid waste.

B. Replacement of roll-offs. In the event a roll-off becomes damaged or stolen, the authorized party, for a property generating construction or demolition material, shall contact the hauler for replacement of the affected roll-off.
(Ord. No. 17380, § 1, 8-24-2010; Ord. No. 17471, § 1, 12-21-2010)

Article V Identification as Recyclable Materials for Commercial Collection

9.04.350 Identification as recyclable materials.

Material managed in accordance with all of the following requirements shall be considered commercial recyclable materials for purposes of this chapter. The management of carts and program recyclable materials identified as being included within the residential recycling program are not subject to the requirements of this article.

A. Separation. Commercial recyclable materials shall:

1. Be separated by the generator from any solid waste generated at the property; and

2. Be composed of cardboard, paper, plastic, glass, metal or other materials as designated by the director from time to time.

B. Storage. Commercial recyclable materials shall:

1. Not be commingled with any solid waste during storage and/or collection;

2. Be stored in carts, containers and/or roll-offs specifically designated to store commercial recyclable materials, or bulked and secured in a manner not contributing to a nuisance or potential fire hazard;

3. Be stored in carts, containers, roll-offs or as bulked material with affixed labels, decals, paint or signs that clearly indicate "RECYCLABLE MATERIAL" in letters at least two inches in height, in a color boldly contrasting the paint color of the cart, container, roll-off or bulked material; and

4. Be stored in carts, containers, roll-offs or as bulked material in a manner not constituting a nuisance or contributing to windblown litter or discharge to the environment.

C. Records. In order to verify commercial recyclable material collection service, generator shall retain a copy of a written contract or agreement securing recyclable material collection service with an identified third party and retain written copies of bills or invoices for the most recent period of twelve calendar months.
(Ord. No. 17380, § 1, 8-24-2010; Ord. No. 17471, § 10, 12-21-2010)

Article VI Other Waste

9.04.360 Animal waste.

Occupants of residential properties who generate animal waste from domestic animals may discard animal waste in the residential property's assigned cart designated for municipal solid waste to the extent that it does not create a nuisance. Occupants of residential properties who generate quantities of animal waste that will create a nuisance and all occupants of commercial properties and mixed-use properties may discard of animal waste in either:

A. A dumpster collected as often as necessary to prevent occurrence of a nuisance or health hazard, but not less than once per week; or

B. A roll-off with a maximum capacity of fifteen cubic yards collected as often as necessary to prevent occurrence of a nuisance or health hazard, but not less than once per week.
(Ord. No. 17380, § 1, 8-24-2010)

9.04.370 Dead animals.

The city may charge the established fee for the collection and disposal of dead animals, regardless of whether the service was or was not requested, to the owners of the dead animals or the owner of improved property where the dead ani-

mals were found. Owners or occupants of improved property where a dead animals is located shall contact the department for collection and disposal of the dead animal within twenty-four hours of the discovery of the dead animal. For dead animals less than forty pounds, owners of the dead animals or owners or occupants of improved property where the dead animals are located shall place the dead animal in a securely tied plastic bag. For dead animals equal to or greater than forty pounds, owners of the dead animals or owners or occupants of improved property where the dead animals are located shall place the dead animal in accordance with the instructions of the department. City shall collect dead animals in accordance with the following:

A. For dead animals less than forty pounds and placed in a securely tied plastic bag, city shall collect with existing equipment if practical.

B. If in the opinion of the director, the dead animal has become so decomposed or due to other reasons the removal of the dead animal using the existing equipment of the department is impractical or the dead animal is greater than forty pounds, the department shall arrange for an alternative method of disposal and assess the cost thereof against the owner of the animal or the owners or occupants of the improved property where the animal is found.

C. Nothing in this chapter shall be construed to prevent the department from picking up dead animals that have come to their attention, whether by citizen complaint or otherwise; provided, however, that if the dead animal was found on improved property, the owner of the dead animal or the owners or occupants or the improved property where the dead animal was found, may be given the opportunity to bury the animal on his own premises.

(Ord. No. 17380, § 1, 8-24-2010)

9.04.380 Other waste.

Generators of waste, other than waste described in Article II, III, IV, and V above, shall be solely responsible for the accumulation and storage, collection, processing, and disposal of such waste in full compliance with federal, state, and local laws regarding such waste. Generators of waste, other than waste described and permitted in Article II, III, IV, and V above, shall not place such waste in carts, containers, or roll-offs for municipal solid waste, recyclable materials, and/or construction or demolition material.

(Ord. No. 17380, § 1, 8-24-2010; Ord. No. 17471, § 1, 12-21-2010)

Article VII Haulers*

9.04.390 Hauler permit required.

A. No hauler shall collect, process, or dispose of solid waste or other materials at the authorized municipal solid waste facility or recycling facility, without holding a valid hauler permit granted in accordance with this chapter. A hauler permit issued pursuant to the provisions of this chapter shall be a mere grant or privilege during the term of such permit and subject to all terms and conditions imposed by this chapter and related laws and other ordinances and resolutions of the city. This chapter shall not be construed to require a hauler permit for the transportation of waste through the city, provided that such waste was not generated, collected, or otherwise found within the city and such waste was not disposed at the authorized municipal solid waste facility.

***Editor's note**—Ordinance No. 17603, § 1, adopted July 19, 2011, amends section 1 of Ord. No. 17519 as follows: The provisions of this chapter shall be effective on September 1, 2010, with the following exceptions:

A. Requirements to deliver solid waste to a designated municipal solid waste facility shall take effect on September 1, 2014;

B. Requirements for a hauler franchise agreement shall take effect on September 1, 2011.

C. Requirements for a hauler permit shall take effect on September 1, 2011.

Editor's note—Ordinance No. 18123, adopted February 4, 2014, amends Section 3 of Ordinance 17603 as follows: The provisions of this chapter shall be effective on September 1, 2010, with the following exception:

A. Requirements to deliver solid waste to an authorized municipal solid waste facility shall take effect immediately.

For a hauler providing solid waste collection services, no hauler permit shall be issued under this Article VII unless the hauler enters into a franchise agreement with the city, and such agreement shall supersede any terms or provisions that conflict with the regulations contained in this chapter.
(Ord. No. 17380, § 1, 8-24-2010; Ord. No. 18123, § 7, 2-4-2014)

9.04.400 Hauler permit term.

Upon the effective date of this ordinance, the city may grant a hauler permit for a term commencing on the date of the issuance of the hauler permit, as set forth in Section 9.04.390, and expiring on August 31st of each calendar year.
(Ord. No. 17380, § 1, 8-24-2010)

9.04.410 Hauler permit application, issuance, and appeal procedures.

A. Hauler permit application. To acquire a hauler permit for the first time, or to add any additional vehicles to a current, valid hauler permit, a hauler must submit an application to the department for a hauler permit a minimum of fourteen calendar days prior to the proposed commencement of collection within the city. Any currently-permitted hauler must submit an application for renewal to the director for a hauler permit a minimum of sixty calendar days prior to the expiration of the valid hauler permit. Haulers shall submit a hauler permit application in accordance with this chapter and the policies and procedures established by the director. The hauler shall, under penalty of perjury, swear that all information contained in the hauler permit application and all information submitted in connection with the hauler permit application is true and correct. At a minimum, the application for a hauler permit shall require a hauler to provide the following information:

1. The name, address and telephone number of the applicant;

2. All names under which the applicant is doing business or has conducted business during the past three calendar years;

3. A list of all proposed permitted vehicles to be used within the city for the purpose of collecting solid waste and/or recyclable materials including the following information for each vehicle:

a. The state motor vehicle registration number;

b. Description of chassis by year and manufacturer;

c. Description of the body by year and manufacturer;

d. The legal weight limit;

e. The volume of the body of the vehicle in cubic yards; and

f. Copy of insurance coverage for each vehicle in an amount not less than the minimum coverage required by Texas law.

4. The types of solid waste and/or recyclable materials to be collected, transported, processed, and/or disposed.

5. Proof of an executed, current franchise agreement with the city for hauler services.

6. Any additional data and information deemed necessary by the director in order to verify the accuracy of information contained in the permit application forms and attendant documents.

B. Review, issuance, denial and appeal of hauler permit application. An application for an initial or renewed hauler permit submitted pursuant to this article may be granted or denied by the director. Such application may be denied for one or more of the following reasons:

1. The applicant has failed to provide some or all of the information required by Section 9.04.410A, including, but not limited to, proof of an executed, current franchise agreement with the city for hauler services.

2. The applicant has supplied false information to the city in connection with any matter regulated under this chapter.

3. The applicant has failed to pay all or any portion of the established hauler permit fee, other fees, penalties, or interest required or imposed pursuant to this chapter.

4. The applicant has failed to comply with Texas state requirements for vehicles governed by 30 TAC § 330.105.

The director shall grant or deny a hauler permit application within sixty calendar days of the applicant's submission of a completed application. In the event the hauler permit application is denied by the director, the appeals process shall be conducted in accordance with this chapter.
(Ord. No. 17380, § 1, 8-24-2010; Ord. No. 18123, § 8, 2-4-2014)

9.04.420 Permitted vehicle requirements.

A. Permitted vehicle ownership, identification, and appearance. Permitted hauler shall submit any changes to the information provided in the hauler permit to the director within fourteen calendar days of such change. Permitted hauler shall use only permitted vehicles identified on the hauler permit application to collect solid waste and/or recyclable materials within the city. Hauler shall solely utilize permitted vehicles within the city that are:

1. Owned or leased by the hauler;
2. Listed in the hauler permit application as a permitted vehicle;
3. Cleaned regularly and upon the request of the director as to maintain permitted vehicles in accordance with 30 TAC § 330.105;
4. Affixed to the windshield with the city permitted hauler decal as designated by the director; and
5. Identified with paint or decal on the driver's-side door, indicating hauler permit number and permitted vehicle number or letter identifier below hauler permit number. Numbers or letters must be a minimum of two inches in height and of a color contrasting to the paint color of the vehicle.

B. Permitted vehicle construction and maintenance. Permitted haulers shall use only permitted vehicles identified on the hauler permit application to collect solid waste and/or recyclable materials that meet the following minimum requirements, both prior to and after the issuance of a hauler permit:

1. The permitted vehicle body shall be capable of being readily emptied;
2. The permitted vehicle shall be kept in a sanitary condition, in accordance with 30 TAC § 330.105;
3. The permitted vehicle shall be so equipped that all loading openings on the bodies have tightly fitting doors or covers which latch, clamp or fasten to keep them closed and rubber or other suitable gasket to render them leak proof, spill proof, dust proof, and odor proof to the maximum extent practicable;
4. The permitted vehicle shall be equipped with heavy-duty front hooks, loops or shackles, good and serviceable tires and other accessories as necessary for operation and/or navigation in or about any authorized municipal solid waste facility; and
5. The permitted vehicle shall meet all other requirements as determined by current and adopted State of Texas and local regulations to protect the health, safety, and general welfare of the city and the city residents.

C. Inspection and documentation of permitted vehicles. The director may inspect any permitted vehicle used or proposed for use by a permitted hauler together with the contents of such permitted vehicle. Haulers shall maintain accurate documents in each permitted vehicle which identify the contents as solid waste or recyclable materials and the city, county, and state of origin of the solid waste or recyclable materials.
(Ord. No. 17380, § 1, 8-24-2010; Ord. No. 17471, § 11, 12-21-2010; Ord. No. 18123, § 9, 2-4-2014)

9.04.430 Cart, container, and roll-off requirements.

Permitted haulers shall provide collection of solid waste and recyclable materials with carts, containers, and roll-offs that are owned or leased by the permitted hauler and meet the following minimum requirements:

A. Each cart, container, and roll-off shall be painted with or securely affixed with the owner's name and business address or telephone number on at least one side of each receptacle. Lettering shall be of sufficient size and of contrasting color to be easily visible at a distance of twenty feet;

B. Each container and roll-off shall be painted, or securely affixed, with the tare weight on two opposite sides of the respective container and roll-off; and

C. Each container and roll-off shall be cleaned regularly.

(Ord. No. 17380, § 1, 8-24-2010)

9.04.440 Transporting waste.

Each permitted hauler shall comply with the following requirements for transporting solid waste and recyclable materials within the city:

A. Permitted haulers shall suitably enclose or cover solid waste and recyclable materials prior to transportation to an authorized municipal solid waste facility or a recycling facility to prevent littering, spillage of materials or fluids, and/or infiltration of rainwater inside the solid waste or recyclable materials. Tarpaulins must be used to cover compactor box openings, roll-off tops, or other openings. Tarpaulins must be kept in good repair at all times.

B. Permitted haulers shall immediately clean and remove any litter and spillage of materials or fluids upon the roads caused by the permitted hauler or the permitted hauler's permitted vehicles. Permitted hauler shall remit payment to city within thirty (30) calendar days, upon written notification by the city, for any and all costs incurred by the city related to any such removal of litter, spillage of materials or fluids, and/or infiltration of rainwater caused by the permitted hauler or the permitted hauler's permitted vehicles. This provision shall be in addition to any penalties authorized elsewhere by this chapter or any other provision of law.

(Ord. No. 17380, § 1, 8-24-2010; Ord. No. 18123, § 10, 2-4-2014)

9.04.450 Disposal of solid waste.

Except as otherwise specifically provided in this chapter, permitted haulers who collect solid waste generated or otherwise found within the city shall deliver such solid waste, other than excluded waste, to an authorized municipal solid waste facility. Haulers shall be required to comply with all posted rules at an authorized municipal solid waste facility operated by the city. Any failure of any person to deliver such waste to an authorized municipal solid waste facility or to adhere to posted rules at such facility shall be considered a violation of this chapter and is subject to enforcement in accordance with Article X of this chapter. For excluded waste, permitted haulers shall dispose of such solid waste in accordance with federal, state and local laws. This section shall not be construed to prohibit the source separation of recyclable materials from solid waste prior to collection of such solid waste for disposal.

(Ord. No. 17380, § 1, 8-24-2010; Ord. No. 18123, § 11, 2-4-2014)

9.04.460 Hauler records.

Each permitted hauler shall maintain current customer records, including customer name, address, service level information, and routing records, including permitted vehicle number, collection day and daily routes. In addition, each permitted hauler shall keep such records, including scale house tickets, receipts, invoices, and other pertinent papers, in such form as the director may require and for a period no less than two consecutive calendar years. Such records shall include, but not be limited to, documents identifying the authorized municipal solid waste facility or recycling facility where solid waste and recyclable materials collected in the city were delivered for proper transfer, storage or disposal. The director may examine the books, papers, records, financial reports, equipment, and other facilities of any permitted hauler in order to verify compliance with this chapter.

(Ord. No. 17380, § 1, 8-24-2010; Ord. No. 019541, § 3, 9-26-2023)

9.04.470 Violations.

A. Notice of correction. The city shall issue a written notice of correction to a driver of a permitted hauler who fails to meet the requirements of a haulers permit.

1. The responsible party in receipt of a written notice of correction shall complete any and all

necessary corrective actions to correct and remediate the documented violations within seven calendar days; and

2. Upon completion of the necessary corrective actions, the responsible party shall provide a written or verbal description of the corrective action within seven calendar days to the city official identified on the written notice of correction, or for matters that cannot be reasonably corrected and remediated within seven calendar days, the responsible party shall provide a written statement indicating how compliance with the provisions set forth in this chapter will be achieved within seven calendar days to the city official identified on the written notice of correction.

B. A written citation shall be issued by the appropriate city official, to a permitted hauler who violates any provision set forth in this Article VII, such as in the case of a responsible party who fails to correct and remediate the documented violation on written notice of correction within the seven-day period or other period allowed in this subchapter.

C. Delinquent fees. If the holder of any hauler permit issued pursuant to this chapter becomes delinquent in the payment of fees, the director is authorized, upon ten calendar day's notification to the hauler, to refuse access to city disposal facilities. The director may further, upon thirty calendar days notification, suspend such hauler permit, as provided in 9.04.480.

D. History of delinquency. If the holder of any hauler permit has a history of delinquency in payment of fees as evidenced by having been issued more than one notice from the director, such permitted hauler shall be required to establish an account with the department and shall pay the estimated monthly amount of such fees in advance each month. The estimated monthly amount shall be as established by the director.

(Ord. No. 17380, § 1, 8-24-2010)

9.04.480 Suspension, revocation of hauler permit; appeals.

A. Suspension of hauler permit.

1. For any permitted hauler that has been named as a responsible party and been issued three written notices of correction by the city within a consecutive twelve-month span, the director may suspend the hauler permit for such hauler.

2. A hauler that has had its hauler permit suspended is eligible to re-apply for a hauler permit sixty days from the date of suspension.

3. A hauler may appeal the suspension of its hauler permit in accordance with this subsection.

B. Revocation of hauler permit.

1. A hauler permit may be revoked for any of the following reasons:

a. The hauler has had two prior suspensions in a consecutive twelve-month span;

b. The hauler interferes with an investigation of the director in the performance of official duties;

c. A hauler operates under a suspended hauler's permit;

d. After having received written notice from the city that a franchise agreement is required within thirty days of the issuance of the hauler's permit or the effective date of this ordinance and after said period of time, hauler has not entered into a franchise agreement with the city;

e. Hauler's franchise agreement required by Chapter 9.04 of the City Code is revoked by the city.

2. For any permitted hauler that has had its hauler permit revoked by the director, the hauler shall not be eligible to receive a hauler permit for a period of twelve months from the date of written notice of revocation from the director for that hauler.

C. Hauler permit appeals.

1. If the director denies an application for a hauler permit or suspends or revokes a hauler permit, the director shall prepare a report within ten business days of taking such action, indicating the reasons for the denial, suspension or revocation. The director's decision is final unless, within ten calendar days from the date of receiving the director's notice of the action, the appealing party files with the city clerk a written appeal to the city

manager specifying reasons for the appeal. Said appeal shall also include a written rebuttal to the director's report.

2. The city manager or his designee shall review the director's report and the appellant's rebuttal. The city manager or his designee shall make a ruling on the appeal within a reasonable period of time after the appeal has been filed.

3. The city manager or his designee shall sustain, reverse or modify the action of the director. The decision of the city manager is final.

(Ord. No. 17380, § 1, 8-24-2010; Ord. No. 17471, § 12, 12-21-2010; Ord. No. 019541, § 4, 9-26-2023)

9.04.490 Ownership of solid waste and recyclable materials.

Title to all solid waste and recyclable materials placed for collection shall be vested in the permitted hauler upon collection of a cart, container, or roll-off by the person discarding of such solid waste and recyclable materials at the collection location. For solid waste and recyclable materials that the authorized municipal solid waste facility and recycling facility is prohibited by law or permit from processing or disposing, the responsibility for properly discarding of such solid waste and/or recyclable materials shall remain with the person generating such waste and only be transferred to the permitted hauler upon collection of such waste by permitted hauler. Scavenging by any person from any cart, container or roll-off placed for collection within the city is prohibited.

(Ord. No. 17380, § 1, 8-24-2010; Ord. No. 18123, § 12, 2-4-2014)

9.04.500 Permitted hauler recycling rebate.

A. Excluding the city, permitted haulers will be eligible for a recycling rebate for recyclable materials identified as commercial recyclable materials by article v and collected from commercial properties and mixed-use properties in the city provided that such permitted hauler meets the following requirements:

1. Permitted hauler is in good standing with the city;

2. Permitted hauler has not received more than two written notices of correction from the city during the prior twelve calendar months;

3. Permitted hauler has entered into a written agreement with the city for the permitted hauler recycling rebate program; and

4. Other requirements as established by the city.

B. The permitted hauler recycling rebate shall be applied quarterly to the established tipping fees paid to the city for solid waste disposed by such permitted hauler at the authorized municipal solid waste facility for the prior three calendar month period. The permitted hauler recycling rebate calculation shall be developed by the city manager or his designee. The permitted hauler recycling rebate amount shall be set by resolution of the city council. The permitted hauler recycling rebate shall not apply to construction or demolition waste.

(Ord. No. 17380, § 1, 8-24-2010; Ord. No. 17471, §§ 1, 13, 12-21-2010; Ord. No. 18123, § 13, 2-4-2014)

9.04.510 Emergency powers; right to assume collection.

A. The city may assume responsibility for all or part of the collection of solid waste within the city should the city determine it to be in the best interest of the health and welfare of the citizens of the city. Such action shall be on a temporary basis within which time a hearing before the city council is held to determine whether to continue this emergency action.

B. Prior to any hearing described in Subsection A. of this section, a written notice to all affected permitted haulers setting forth the time, place, and purpose of such hearing shall first be sent via electronic mail and then a hard copy of said notice shall be mailed within a minimum of seventy-two (72) hours to the last known addresses of such permitted haulers.

C. The proceeding shall be conducted informally with the procedures established by the city manager in consultation with the city attorney. All interested parties, including the city manager or

his designee, shall be allowed to present any evidence, documents, or statements in support of their position. The city council shall then determine whether the action described in Subsection A. of this section should be made permanent or whether any other action by the city council is appropriate under the circumstances.
(Ord. No. 17380, § 1, 8-24-2010)

Article VIII. Reserved*

9.04.520 Reserved.

Article IX. Fees and Payments Procedures

9.04.530 Fees general.

Fees for collection, disposal, processing, environmental services, and other fees as set forth in this chapter are established and required and paid as provided herein.

A. Residential properties fees.

1. Base rate. Each residential property unit for which service has been initiated pursuant to this chapter shall be charged the established monthly fee.

2. Senior and disabled citizens discount. The monthly charge for residential property unit which is owned and occupied, or rented and occupied by a person sixty-five or more years of age or by a person who presents proof of disability in accordance with this section will be discounted by the stated percentage or amount stated in the budget resolution or other duly adopted resolution of the city council. The fee discount shall only apply to the first cart. No fee discount shall be granted or remain in effect unless the following conditions are met:

a. The person claiming such discount must be sixty-five or more years of age, or must present proof of disability when the discount is requested and must file a notarized application on a form provided by the department.

b. A written request for such discount may be filed with the department at any time when the applicant reaches eligibility and will take effect at the first billing cycle which starts thirty calendar days thereafter, remaining in effect until eligibility lapses. Such request shall give the street address, dwelling unit number, if any, and the water utilities account number of the property being served, the name and addresses of the owner-occupant or renter-occupant, the day and year of his birth in the case of a person sixty-five or more years of age, and a substantiating document in the case of a disabled person. The request shall be signed by the person seeking the discount or someone authorized by him and having personal knowledge of the facts.

c. Proof of age shall consist of one of the following:

i. If the person seeking the discount presents a valid driver's license or state-issued identification card showing the day and year of birth;

ii. If the person seeking the discount currently holds a Sun Metro Senior Citizen reduced fare card;

iii. If the request is signed by the director of a city senior citizen center or nutrition center or other agency approved by the department.

iv. All other requests shall be verified by the signed and sworn affidavit of the person seeking the discount or someone authorized by him and having personal knowledge of the facts.

d. Proof of disability shall consist of one of the following:

i. Certification from the Social Security Administration that the applicant is the recipient of a social security or supplemental security income disability pension;

ii. Certification from the proper administrative officer that the applicant is the recipient of a public disability pension and classified one hundred percent disabled; or

iii. Certification from the Veterans Administration that the applicant is the recipient of the Veterans Administration disability payments and classified one hundred percent disabled.

***Editor's note**—Ord. No. 18123, § 14, adopted February 4, 2014, repealed Art. VIII, § 9.04.520, which pertained to designated or authorized municipal solid waste facilities and derived from Ord. No. 17380, § 1, adopted August 24, 2010; Ord. No. 17604, § 3, adopted July 19, 2011.

e. The person claiming a discount must be the same person who is billed by the water utilities for water service to the residence to which such discount applies.

f. Approved discounts are not transferable to another person or address.

g. No person shall be entitled to a discount for more than one residence at the same time and only for the residence the person occupies, nor shall any person be entitled to claim both a sixty-five years and over discount and a disabled discount at the same time.

h. In all cases, the director shall have the right to investigate the information given on requests for discount, and to make reasonable requirements for supporting evidence.

i. The discount provided in this section shall not apply to charges for additional carts, special collections, collection of solid waste from commercial properties and mixed-use properties, or from any location of any type utilizing containers or roll-offs.

j. Any change which results in loss of eligibility for a discount for a residence will be reported to the department within thirty calendar days, and full charges will be restored during the next billing cycle.

k. Eligibility for the senior and disabled citizens' discount shall lapse at the end of each anniversary of determination of eligibility.

l. The director shall have the authority to investigate and verify that applicants continue to be eligible for this discount.

m. The discount shall in no way be considered as approval of sidedoor collection under Section 9.04.100. Such approval must be separately requested pursuant to that provision, and if granted shall result in the termination of any discount provided under this section.

n. Persons receiving sidedoor collection under Section 9.04.100 are not eligible for the discount.

3. Failure to comply with residential carts/containers requirements. In addition to any other actions or remedies the city may pursue, in the case of residential municipal solid waste accounts, the city shall charge the established fee to a person who fails to comply with the requirements regarding the carts or containers.

B. Commercial properties and mixed-use properties fees. The established monthly fee for services provided pursuant to this chapter by the city from commercial properties and mixed-use properties shall be charged.

C. Construction or demolition material and other waste fees. The established fee for services provided pursuant to this chapter by the city of construction or demolition material and other waste shall be charged.

D. Other fees.

1. Each person or entity requesting or needing the delivery or relocation of a cart, container, or roll-off provided by the city, each person or entity who cancels cart, container, or roll-off service provided by the city, and each person or entity who requests special services from the city such as the collection and disposal of bulk waste, infectious waste, dead animals, or an extra collection shall be charged the established service charges and special collection fees.

2. The service charges shall be imposed each time a cart, container, or roll-off is delivered, moved or relocated by the department or recovered by the department due to cancellation of service.

3. The special collection service fees shall be imposed for extra collections, unscheduled collections, collections for bulk waste, collection of infectious waste, and collections of dead animals as defined in this chapter.

4. The established cart, container, and/or roll-off replacement fee shall be charged for the replacement of cart, container, and/or roll-off that are lost, burned, damaged or destroyed by the customer and the customer requests replacement or the director determines that the cart, container, and/or roll-off is no longer serviceable by the department.

E. The department of environmental services shall be authorized to charge the established fee as a related cost to providing the solid waste disposal

utility to service due to the wear and tear on the city's rights-of-way caused by the use of the city sanitation vehicles in providing the utility service, and that the reasonable return generated by the franchise fee be transferred to the city general fund to be appropriated by the city council as deemed appropriate.

F. Environmental services fee. The owner, agent or occupant of every residence, business, establishment, industrial, educational, institutional, religious or other premises shall be charged the established monthly user service fee. Such fee shall relate to the provision of environmental services by the city and is intended to defray city expense necessary to cleaning up illegally dumped waste, compliance with environmental laws, collecting and disposing of dead animals from public rights of way and equitably sharing costs for business and neighborhood area cleanups and graffiti removal, benefiting residents and businesses in the city.

G. Shopping cart recovery fee. The shopping cart recovery fee is established and shall apply per shopping cart recovered by its owner from the city, subject to the conditions specified in Section 9.04.920C of this chapter.
(Ord. No. 17380, § 1, 8-24-2010; Ord. No. 17471, § 1, 12-21-2010; Ord. No. 18123, § 15, 2-4-2014; Ord. No. 18829, § 1, 8-14-2018)

9.04.540 Permit fees.

A. Hauler permit. The established annual fee for a hauler permit shall be charged for every permitted vehicle used by the permitted hauler. The fee shall be prorated for the number of months said hauler permit is issued on or after September 1, 2010 until the end date of August 31, 2011, and shall be charged for a twelve-month period each year for which it is issued on or after September 1, 2011.

B. Additional vehicle registration fee. The fee for either registering an additional or substituting a previously registered vehicle shall be one hundred percent of the annual fee for the vehicle to be added or substituted.

C. Special waste disposal fees. The special disposal fee is established and shall be charged for the disposal of special waste.

D. Container location on sidewalk or on public right-of-way. When permitted under this chapter, the annual established fee shall be paid by the container owner for each cart, container, and/or roll-off located on the public right-of-way. It shall be the container owner's responsibility when placing a cart, container, and/or roll-off on public right-of-way to pay this annual fee to the department. Failure to pay shall result in (1) having the art, container, and/or roll-off removed from the public right-of-way; and/or (2) imposing a fee charged at the same amount as the fee to the generator or hauler providing such services.
(Ord. No. 17380, § 1, 8-24-2010)

9.04.550 Disposal Fees.

A. Landfill fees. Landfill fees are established and shall be charged by both type of material and vehicle type.

B. Fees subject to fraction. All fees or rates established as landfill or disposal are subject to, "or any fraction thereof."

C. Waste tires. Disposal fees for waste tires from residential users who have exceeded the eight tires per year limit or from commercial users are established and shall be charged.

D. Surcharge for uncovered loads. In conjunction with the city's enforcement of this chapter and Texas Commission on Environmental Quality rules, the city is authorized to charge the established surcharge fee for vehicles that are not provided with a tarpaulin, net, or other means to effectively secure the load in order to prevent the escape of any part of the load by blowing or spilling to the person or company hauling waste to the facility when the director observes or otherwise acquires credible information that the hauler has spilled waste materials along and within the right-of-way of the public access roads serving the facility within a two-mile distance from the facility entrance.

E. Transfer fees. Fees for disposal at any city transfer station are established and shall be charged based on compacted or uncompacted cubic yard. (Ord. No. 17380, § 1, 8-24-2010)

9.04.560 Payment procedures and nonpayment of fees.

A. Initiation of collection service. The department is authorized to initiate collection services to any generator at the request of the owner, occupant or agent representing the property owner and

to bill for all established fees through the El Paso Water Utilities or other means authorized by the director at the established rates. Once service for class is initiated in the customer's name, the established fees shall be charged to the customer during such time as the customer occupies the building for which the service had been established, or the building is connected to an active water meter.

B. Prompt payment of fees. All fees established in accordance with this chapter shall be paid promptly by the person to which the service has been provided. Payment of all fees established in accordance with this chapter are due upon preparation of the bill by the city and shall be paid within twenty (20) calendar days after the bill is mailed, unless a specific provision in this chapter requires the fee is required to be paid in advance or at the time of a request for services or for the issuance of a permit.
(Ord. No. 17380, § 1, 8-24-2010)

9.04.570 Solid waste management fund.

Each year, all fees collected for the environmental and solid waste management services provided by the city under this chapter shall be deposited into a solid waste management fund. Payment for the operations of the department attributable to its solid waste management services function shall be made from this fund. Fund balance reserves shall be established as directed by the city council and managed for these purposes by the city manager or his designee. The annual budget for the department shall show these reserves as a separate use of fund balance. Corresponding expenses will be incorporated into the annual operating budget.
(Ord. No. 17380, § 1, 8-24-2010)

Article X Enforcement

9.04.600 General authority.

The city may initiate an action to enforce the provisions of this chapter, including legal proceedings to compel compliance.
(Ord. No. 17380, § 1, 8-24-2010)

9.04.610 Authority to issue citations.

The following city officials are authorized to enforce the provisions of this chapter and shall have the power to issue warnings and citations to any persons violating the provisions of this chapter:

A. City manager or his designee;

B. Code enforcement division;

C. Police; and

D. Fire chief or designees.

The city officials designated above are authorized to conduct inspections of any property necessary, conduct audits of records and documents required to be utilized and maintained by this chapter, and to investigate instances of noncompliance with this chapter to enforce the provisions of this chapter. If the occupants in possession of any property refuses to allow the city officials permission to enter the property, at any reasonable time, those officials shall have recourse to every remedy provided by law to secure entry including obtaining the proper judicial warrants.
(Ord. No. 17380, § 1, 8-24-2010)

9.04.620 Reserved.

9.04.630 Other penalties.

Any person violating any provision of this chapter shall be deemed guilty of a misdemeanor and shall be punished by a fine up to two thousand dollars, except that a violation of the illegal dumping provisions of this chapter shall be punished by a fine of up to four thousand dollars. If any such violations of this chapter are continuous, each day that the violation occurs shall constitute a separate offense.

In addition to any penalties provided for in this chapter, this chapter is enforceable by injunction.
(Ord. No. 17380, § 1, 8-24-2010; Ord. No. 18413, § 1, 9-8-2015)

Article XI Exclusive Franchise

9.04.640 Exclusive franchise.

The city reserves the right to enter into an exclusive franchise agreement for the collection of solid waste and/or recyclable materials within the city.
(Ord. No. 17380, § 1, 8-24-2010)

Article XII Exclusive Hauler

9.04.650 Exclusive hauler.

The city reserves the right to become the sole collection, processing, and/or disposal provider for any or all solid waste and recyclable materials generated within the city.
(Ord. No. 17380, § 1, 8-24-2010)

Article XIII Litter and Illegal Dumping

9.04.660 Applicability.

This article shall apply to:

A. Persons in the city;

B. Owners of improved properties in the city, where the residential property is vacant;

C. Occupants of improved properties in the city, where an owner is not an occupant; and

D. Owners of improved properties by the city where an owner is also an occupant.
(Ord. No. 17380, § 1, 8-24-2010)

9.04.670 Litter and illegal dumping prohibited.

No person shall dump, throw, drop, discard or otherwise dispose of litter on any public or private property within the city. This prohibition shall not be construed to limit persons placing litter in public receptacles or in authorized private receptacles in such a manner as to prevent it from being carried or deposited by the elements upon public or private property.
(Ord. No. 17380, § 1, 8-24-2010)

9.04.680 Clean construction sites.

Any person performing construction work within the city shall at all times keep the sidewalk, street, alley and public or private property abutting the site free of construction or demolition material, solid waste, recyclable materials, litter, or other waste.
(Ord. No. 17380, § 1, 8-24-2010; Ord. No. 17471, § 1, 12-21-2010)

Article XIV Distribution of Handbills and Other Materials

9.04.700 Applicability.

This article shall apply to all persons in the city.
(Ord. No. 17380, § 1, 8-24-2010)

9.04.720 Handbills in public places.

No person shall throw, post, or deposit any handbill within the city. Nor shall any person hand out or distribute or sell any handbill in any public place in the city. Provided, however, a person on any sidewalk, street or other public place within the city may hand out or distribute, without charge to the receiver thereof, any handbill to any person willing to accept it.
(Ord. No. 17380, § 1, 8-24-2010)

9.04.730 Placing handbills in or upon vehicles.

No person shall throw, post, deposit, hand out or distribute any handbills in or upon any vehicle. Provided, however, a person may hand out or distribute, without charge to the receiver thereof, a noncommercial handbill to any occupant of a vehicle who is willing to accept it.
(Ord. No. 17380, § 1, 8-24-2010)

9.04.740 Depositing handbills on properties.

No person shall throw or deposit any handbill in or upon any property except by handing such handbill directly to the owner, occupant or other person then present in or upon such property. In case properties which handbills are prohibited in accordance with this article, such person, unless requested by anyone upon such property not to do so, may place or deposit any such handbill in or

upon such inhabited property, if such handbill is so placed or deposited as to secure or prevent such handbill from being blown or drifted about such property or sidewalks, streets or other public places and except that mailboxes may not be so used.
(Ord. No. 17380, § 1, 8-24-2010)

9.04.750 Handbills prohibited.

No person shall throw, post, deposit, hand out or distribute any handbill upon or to any private property, if requested by any one thereon not to do so, or if there is placed on said property in a conspicuous position near the entrance thereof a sign bearing the words: "No Trespassing," "No Peddlers or Agents," "No Advertisement" or any similar notice, indicating in any manner that the occupants of said property do not desire to have their right of privacy disturbed, or to have any such handbills left upon such property.
(Ord. No. 17380, § 1, 8-24-2010)

9.04.760 Posting or affixing of handbills and other material.

No person shall post, place or affix or cause to be posted, placed or affixed any handbill or other material including sign, notice, poster or other paper or device calculated to attract the attention of the public at any lamp post, public utility pole, street median, public right-of-way, or shade tree, or upon any public structure or building, except as may be authorized or required by law. This provision shall not apply to signs relating to matters of public health, safety and welfare posted, placed, or affixed by the city.
(Ord. No. 17380, § 1, 8-24-2010)

Article XV Prohibited Accumulation of Solid Waste, Recyclable Materials, or Other Waste

9.04.800 Applicability.

This article shall apply to:

A. Persons in the city;

B. Owners of improved properties in the city, where the residential property is vacant;

C. Occupants of improved properties in the city, where an owner is not an occupant; and

D. Owners of improved properties in the city, where the owner is also an occupant.
(Ord. No. 17380, § 1, 8-24-2010)

9.04.810 Responsibility for prohibiting accumulation of solid waste, recyclable materials, or other waste.

It is unlawful for the owner, or any person having the right of possession of any property within the city to accumulate or to permit the accumulation of solid waste, recyclable materials, or other waste on such property or on the sidewalks, parkways, street gutters or alleys abutting such property. Any such accumulation is declared to be a public nuisance, the prompt abatement of which is deemed to be a public necessity.
(Ord. No. 17380, § 1, 8-24-2010)

Article XVI Unsecured Loads

9.04.820 Applicability.

This article shall apply to all persons in the city.
(Ord. No. 17380, § 1, 8-24-2010)

9.04.830 Unsecured loads prohibited.

No person shall transport material, including solid waste, recyclable materials, or other waste unless such material is completely enclosed, covered, and/or secured as to prevent the load or any part of the load from being carried or deposited by the elements upon public or private property.
(Ord. No. 17380, § 1, 8-24-2010)

Article XVII Weeds and Vegetation

9.04.850 Applicability.

This article shall apply to owners or occupants of properties, including improved property and properties not defined as improved properties, within the city.
(Ord. No. 17380, § 1, 8-24-2010)

9.04.860 Weeds and vegetation prohibited.

A. Owners shall maintain properties as to prevent the growth of weeds and vegetation, other than those types of weeds and vegetation excepted under Section 9.04.870, under the following conditions:

1. Any individual lot or tract of land smaller than three acres upon which weeds and vegetation exceed an average height greater than twelve inches.

2. Any individual lot or tract of land three acres or greater upon which weeds and vegetation exceed an average height greater than twelve inches and are within one hundred fifty feet of the curb line of adjacent streets, and where no curb exists, to the edge of the street or road surface, or within one hundred fifty feet of any public or private property line.

3. Regardless of lot size, any abutting parkways or alleys upon which weeds or vegetation exceed an average height greater than twelve inches.

B. Any accumulation or growth of such weeds and vegetation on properties covered by this article, unless exempted under Section 9.04.870, is deemed to be deleterious to the public health, comfort and welfare and is declared to be a public nuisance, the prompt abatement of which is a public necessity. The abatement of said public nuisance shall not be conducted in a manner that exposes the site to wind or water erosion, including but not limited to leaving the site barren (without ground cover) or grading to avoid mowing.

C. It is unlawful for any owner or person having the right of possession of any property within the city to cause or permit such public nuisance on the property or any abutting pathways or alleys.

(Ord. No. 17380, § 1, 8-24-2010; Ord. No. 17516, § 2, 3-29-2011)

9.04.870 Exceptions.

The following weeds and vegetation in the city shall be exempt from the requirements of Section 9.04.860:

A. Regularly cultivated ornamental, fruit bearing, vegetable bearing or flowering plants, bushes or trees, or native desert vegetation;

B. Regularly cultivated crops grown on property that is classified as agriculture exempt according to the tax rolls;

C. Pasture lands on property that is classified as agriculture exempt according to the tax rolls;

D. Property that the director determines should be exempted because of the lack of harm to the public health, safety, and welfare (e.g., steep slopes, undeveloped properties, wet ponding areas or areas far removed from population centers and similar areas) or property that has been stabilized in accordance with an approved Grading Stabilization Plan pursuant to Title 18.44 (Grading); and

E. Naturally occurring vegetation on a lot that has never been graded.

(Ord. No. 17380, § 1, 8-24-2010; Ord. No. 17516, § 2, 3-29-2011)

9.04.880 City abatement.

A. The director is authorized to notify the owner about the condition of the land constituting a public nuisance due to accumulation of solid waste, recyclables, weeds and vegetation, other waste, or any other unacceptable, unsightly or unsanitary matter in violation of this chapter. Such solid waste, recyclables, weeds and vegetation, other waste, or any other unacceptable, unsightly or unsanitary matter in violation of this chapter must be removed within seven calendar days after the receipt of such notice. Such notice will further state that if the current property condition is not corrected within the seven calendar days from the service of such notice, the city may, without further notice abate this public nuisance by cleaning the property, and charge the cost of expense incurred in doing such work to the owner of such property and fix a lien thereon as provided by this article.

B. Such notice shall be in writing and delivered in person or sent by mail (or by any means authorized by state law) to the owner, or to any one or more of the owners if the land is owned jointly or in common at the owner's address as recorded in the appraisal district records of the appraisal district in which the property is located,

or to any agency having the authority to lease, rent, sell, manage or take care of the land. If the correction notice cannot be hand delivered at the time of the investigation, or the owner's address recorded in the central appraisal district is unknown, notice may be given by publication at least once in a newspaper of general circulation, by posting the notice on or near the front door of each building on the property to which the violation relates, or by posting the notice on a placard attached to a stake driven into the ground on the property which the violation relates, if the property contains no buildings.

C. If the city mails a notice to a property owner in accordance with this section, and the United States Postal Services returns the notice as "refused" or "unclaimed," the validity of the notice is not affected, and the notice is considered as delivered.

D. The person given such a notice or their representative may request a hearing with the city manager or his designee within seven calendar days after the receipt of the notice, to present their reasons for which this ordinance should not be enforced.

E. If the property owner or their representative fails to remove an accumulation of solid waste, recyclables, weeds and vegetation, other waste, or any other unacceptable, unsightly or unsanitary matter in violation of this chapter within seven calendar days after the receipt or posting of notice, the department shall arrange to have the cleaning, disposal or removal of solid waste, recyclables, weeds and vegetation, other waste, or any other unacceptable, unsightly or unsanitary matter in violation of this chapter done and assess the cost of such clean up, disposal or removal and all reasonable expenses at the owner's expense and to take any action as provided by this chapter. The notice shall state the cost to the city or other entity, to clean the property, including labor costs, administrative costs, transportation expenses, publication costs, expenses for use of equipment, and materials and other reasonable expenses. The notice shall be sent in writing by the director or city comptroller requesting payment to the city within thirty calendar days of receipt by the property owner. Failure to pay the costs associated with the cleanup will result in a request to city council to pass a resolution declaring the reasonable expenses which include the cost of clean up, disposal or removal, labor costs, administrative costs, transportation expenses, publication costs, expenses for use of equipment, and materials and other reasonable expenses, as well as the established authorized fee relating to the preparation of the required legal documents necessary for the creation of and release of lien, plus the cost of recording the resolution, to be a lien on the property payable within ten calendar days after adoption of the resolution, and thereafter bearing ten percent yearly interest until the debt is paid in full. If passed, a copy of the resolution, authenticated by the acknowledgement of the city clerk, shall be filed for record in the office of the county clerk. The city tax assessor and collector shall send a bill for the amount with all tax bills on the property until the debt is paid in full.

F. The city may provide a notice to inform the owner at the owner's address as recorded in the appraisal district records of the appraisal district in which the property is located, by mail (or by any means authorized by state law) and a posting on the property, or by personal delivery of correction notice, that if the owner commits another violation of the same kind or nature that poses a danger to the public health and safety within a twelve-calendar month period from the date of the notice, the city without further notice may correct the violations at the owner's expense and assess the clean-up expense against the property. If a violation covered by a notice under this subsection occurs within the one-year period and the city has not been informed in writing by the owner of an ownership change, then the city without further notice may take any action as provided by Chapter 342 of the Texas Health and Safety Code and assess its expenses as provided by Section 342.007. (Ord. No. 17380, § 1, 8-24-2010; Ord. No. 17543, § 1, 4-26-2011; Ord. No. 18227, § 1, 8-19-2014; Ord. No. 18468, § 1, 2-23-2016)

Article XVIII Litter Collection at Retail or Service Establishments

9.04.900 Applicability.

This article shall apply to owners and occupants of improved property in the city containing a retail or service establishments.
(Ord. No. 17380, § 1, 8-24-2010)

9.04.910 Litter control.

Owners shall comply with the following litter control requirements:

A. Signs. Owners shall post reflective warning signs with the phrase "LITTERING PROHIBITED" shall be posted at parking lots serving retail and service establishments according to the following requirements:

1. Signs shall be constructed of metal, wood or durable plastic;

2. Signs shall be posted on a pole or fixed structure between four and six feet above ground surface;

3. Signs shall have lettering consisting of uppercase letters of no less than two inches in height and must be of a color contrasting the color of the sign itself; and

4. Signs shall be distributed around the parking lot area according to the following requirements:

a. A minimum of one sign shall be posted for parking lots providing between one and twenty-five parking spaces, or where parking spaces are not demarcated, for parking lots up to five thousand square feet; or

b. One sign shall be posted per twenty-five parking spaces provided, or where parking spaces are not demarcated, for each five thousand square feet of parking lot area provided, up to a maximum of five signs total per parking lot.

B. Litter receptacles. Owners shall provide litter receptacles at parking lots serving retail and service establishments according to the following requirements:

1. Litter receptacles shall have a capacity between fifty-five and ninety-six gallons;

2. A minimum of two litter receptacles shall be provided for parking lots providing between one and twenty-five parking spaces, or where parking spaces are not demarcated, for parking lots up to five thousand square feet;

3. One additional litter receptacle shall be provided per additional fifteen parking spaces, or where parking spaces are not demarcated, for each additional three thousand square feet of parking lot area, up to a maximum of twenty litter receptacles total per parking lot;

4. Litter receptacles shall be spaced throughout the parking lot area and/or along the front area of the buildings accessible to the public; and

5. Owners shall ensure that litter receptacles are emptied regularly, and shall ensure that at no time is litter allowed to overflow receptacles.

C. Parking lot area litter control. Owners shall ensure that uncontained litter in the parking lot areas is controlled by removing and placing litter in litter receptacles at least once per business day, or for businesses that are opened to the public twenty-four hours a day, twice per business day. Owners are further required to maintain a written schedule for regular parking lot litter control and make such schedule available to any city official authorized to enforce the provisions of this chapter, upon request of said official.
(Ord. No. 17380, § 1, 8-24-2010; Ord. No. 17471, § 14, 12-21-2010)

9.04.920 Shopping cart control.

Occupants shall comply with the following shopping cart control requirements:

A. Shopping cart recovery. Occupants shall immediately recover, upon sight or notice, any shopping cart that is not contained within the parking area of the establishment providing the shopping cart. Notice may be provided verbally or in written form by a city official or by any person witnessing the occurrence. Occupants shall also immediately recover their shopping carts that are located anywhere in the city to include, but not be limited to, the following locations:

1. Shopping carts located on a city street, alley or right-of-way;

2. Shopping carts located in city stormwater conveyance or ponding areas, including arroyos; and/or

3. Shopping carts located on sidewalks or on private property.

B. Shopping cart maintenance. Occupants shall ensure that each shopping cart provided by the occupant's retail or service establishment clearly identifies the owner of the shopping cart by a sign, label or imprinted logo. Occupants shall ensure that uncontained shopping carts are located and recovered by conducting a search and recovery of nearby (within a one-mile radius) property, neighborhoods and areas of frequent shopping cart accumulation at least once every seven calendar days. Occupants shall also maintain a written schedule for regular shopping cart control and make such schedule available to any city official authorized to enforce the provisions of this chapter, upon request of said official.

C. Impoundment. The city shall impound any shopping cart not contained within the parking area of the retail or service establishment owning the shopping cart, where the occupant has received two or more written notices of violation within a consecutive twelve-month span. Owner of shopping carts shall be able to recover impounded shopping carts from the city by paying the per-shopping cart recovery fee established in Section 9.04.530G of this chapter. Any shopping carts not recovered within thirty (30) calendar days of the city giving notice of the impoundment shall be recycled and/or disposed of by the city. The failure of an occupant to recover an impounded shopping cart within thirty calendar days of the city giving notice of the impoundment shall constitute authorization for the city to dispose of the shopping cart at the occupant's expense. The occupant shall pay such cost of disposal as documented and billed by the city within thirty calendar days upon receipt of the billing.
(Ord. No. 17380, § 1, 8-24-2010)

Article XIX Severability

9.04.950 Severability.

It is hereby declared to be the intention of the city council that the sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable and if any section, paragraph, sentence, clause, or phrase shall be declared unconstitutional or otherwise invalid by a court of competent jurisdiction, such unconstitutionality or invalidity shall not affect any of the remaining sections, paragraphs, sentences, clauses, or phrases herein.
(Ord. No. 17380, § 1, 8-24-2010)

9.04.961 Reserved.

Editor's note—Ord. No. 18447, § 1, adopted Dec. 8, 2015, repealed § 9.04.961, which pertained to types of permits and derived from Ord. No. 17380, § 1, adopted Aug. 24, 2010.

9.04.962 Reserved.

Editor's note—Ord. No. 18447, § 1, adopted Dec. 8, 2015, repealed § 9.04.962, which pertained to application for permits and derived from Ord. No. 17380, § 1, adopted Aug. 24, 2010.

9.04.963 Reserved.

Editor's note—Ord. No. 18447, § 1, adopted Dec. 8, 2015, repealed § 9.04.963, which pertained to vehicle standards and markings and derived from Ord. No. 17380, § 1, adopted Aug. 24, 2010.

9.04.964 Reserved.

Editor's note—Ord. No. 18447, § 1, adopted Dec. 8, 2015, repealed § 9.04.964, which pertained to term of permit and derived from Ord. No. 17380, § 1, adopted Aug. 24, 2010.

9.04.965 Reserved.

Editor's note—Ord. No. 18447, § 1, adopted Dec. 8, 2015, repealed § 9.04.965, which pertained to permit transferability and derived from Ord. No. 17380, § 1, adopted Aug. 24, 2010.

9.04.966 Reserved.

Editor's note—Ord. No. 18447, § 1, adopted Dec. 8, 2015, repealed § 9.04.966, which pertained to violation of permit and derived from Ord. No. 17380, § 1, adopted Aug. 24, 2010.

9.04.967 Reserved.

Editor's note—Ord. No. 18447, § 1, adopted Dec. 8, 2015, repealed § 9.04.967, which pertained to appeal from denial, suspension, revocation and derived from Ord. No. 17380, § 1, adopted Aug. 24, 2010.

Chapter 9.08

JUNKED VEHICLES

Sections:

9.08.010 Declared nuisance.

9.08.020 Definitions.

9.08.030 Abatement.

9.08.040 Exceptions.

9.08.050 Enforcement authority.

9.08.060 Enforcement.

9.08.070 Violation—Penalty.

9.08.010 Declared nuisance.

A. The city council finds that junked vehicles and junked vehicle parts that are located in a place where they are visible from a public place or public right-of-way are detrimental to the safety and welfare of the general public, tend to reduce the value of the private property, invite vandalism, create fire hazards, constitute an attractive nuisance creating a hazard to the health and safety of minors, and are detrimental to the economic welfare of the city by producing urban blight adverse to the maintenance and continuing development of the city and are, therefore, declared to be public nuisances. It is unlawful for any person or persons to cause or maintain such public nuisances by wrecking, dismantling, rendering inoperable, abandoning or discarding his or their vehicle, vehicles or vehicle parts on the property of another or to suffer, permit or allow the same to be placed, located, maintained or exist upon his or their own real property.

B. Covering a junked vehicle with a cover that is custom-tailored or custom-fitted to the particular model of the vehicle being covered will abate the nuisance. The vehicle cover shall be made of a canvas of closely woven, coarse cloth of hemp, cotton or linen that is both water and mildew resistant and shall be maintained free of any tears or holes. To abate the nuisance, the vehicle shall be completely covered, with the exception of the vehicle tires, and the cover shall be secured by a tie-down device. Tires shall be mounted on the vehicle and shall be properly inflated. All four tires must be on the ground. It is the vehicle owner's responsibility to ensure that the vehicle remains completely covered. Placing the junked vehicle behind trees or shrubbery does not abate the public nuisance. The department of environmental services and the police department are authorized to abate such nuisances under the terms and conditions hereinafter provided. (Ord. 16138 § 1, 2005: Ord. 13698 § 1, 1998: Ord. 13152 § 47, 1997: Ord. 13061 § 1, 1997: Ord. 9971 § 1, 1990: Ord. 8652 (part), 1986; prior code § 11-46)

9.08.020 Definitions.

The following words shall have the following meanings:

A. "Antique auto" means a passenger car or truck that was manufactured in 1925 or before, or a passenger car or truck that is at least thirty-five years old.

B. "Collector" means the owner of one or more antique or special interest vehicles who collects, purchases, acquires, trades or disposes of special interest or antique vehicles or parts of them for personal use in order to restore, preserve and maintain an antique or special interest vehicle for historic interest.

C. "Demolisher" means a person whose business it is to convert a motor vehicle into processed scrap metal or to otherwise wreck or dismantle a motor vehicle.

D. "Junked vehicle" means every self-propelled mechanical device, in, upon or by which any person or property is or may be transported or drawn upon a public highway, including motor vehicles, commercial motor vehicles, truck-tractors, trailers and semitrailers, but excepting devices moved by human power or used exclusively upon stationary rails or tracks, and which:

1. Does not have lawfully attached to it:

a. an unexpired license plate, or

b. a valid motor vehicle inspection certificate; or

2. Is wrecked, dismantled or partially dismantled, or discarded; or

3. Is inoperable and has remained inoperable for more than:

a. Seventy-two consecutive hours, if the vehicle is on public property, or

b. Thirty consecutive days, if the vehicle is on private property.

E. "Special interest vehicle" means a motor vehicle of any age that has not been altered or modified from original manufacturer's specifications and, because of its historic interest, is being preserved by hobbyists. (Ord. 14210 § 1, 1999; Ord. 12164 § 1, 1994; Ord. 9971 § 2, 1990: Ord. 8652 (part), 1986; Ord. 8460 § 1, 1985; prior code § 11-47)

9.08.030 Abatement.

A. Upon complaint or upon its own initiative, the environmental services department may initiate appropriate official action to remove and abate a public nuisance in the nature of a junked vehicle or junked vehicle part. Notice of the existence of a nuisance shall be in accordance with the procedures set forth in this chapter.

B. For a public nuisance that exists on private property, the environmental services department shall notify the last known registered owner of the junked vehicle or junked vehicle part, any lienholder of record, and the owner or occupant of the private premises on which the public nuisance exists, that the nuisance exists, that it must be removed and abated within ten days of the receipt of such notice, or that a request for a hearing must be made by the owner or occupant before the expiration of the ten-day time period from the receipt of the notice. The notice shall be sent by certified mail with a five-day return receipt requested. If the post office address of the last known registered owner of the motor vehicle is unknown, notice to the last known registered owner may be placed on the motor vehicle or, if the last known registered owner is physically located, the notice may be hand delivered. If any notice is returned undelivered by the United States Post Office, further official action to abate the nuisance shall be continued to a date not less than ten days after the date of return.

C. For a public nuisance that exists on public property, the environmental services department shall notify the last known registered owner of the junked vehicle or junked vehicle part, any lienholder of record, and the owner or occupant of the public premises or the owner or occupant of the premises adjacent to the public right-of-way on which the public nuisance exists, that the nuisance exists, that it must be removed and abated within ten days of the receipt of such notice, or that a request for a hearing must be made by the owner or occupant before the expiration of the ten-day period from the receipt of the notice. The notice shall be sent by certified mail with a five-day return receipt requested. If the post office address of the last known registered owner of the motor vehicle is unknown, notice to the last known registered owner may be placed on the motor vehicle or, if the last known registered owner is physically located, the notice may be hand delivered.

D. A public hearing shall be held before the municipal court of the city for determination of the existence of a junked vehicle or junked vehicle part as a public nuisance and for the purpose of entering an order requiring the removal of the same if found to be so. Notice of this hearing shall be sent by certified mail to the last known registered owner of the junked vehicle or junked vehicle part, any lienholder of record, the owner or occupant of the private premises, public premises or the premises adjacent to the public right-of-way, as the case may be, not less than ten days before the date of the hearing. At the hearing it is presumed, unless demonstrated otherwise by the owner, that the vehicle is inoperable. The judge of the municipal court shall be the designated official to make such determination and upon the finding that the vehicle or vehicle part is a junked vehicle and constitutes a public nuisance, he shall enter an order requiring the removal of the vehicle or a part thereof. The order must include a description

of the vehicle or vehicle part and the correct identification number and license number of the vehicle if the information is available at the site.

E. Before any city employee or any other person is authorized to remove a vehicle or vehicle part that is in violation of this chapter, he shall first obtain from the appropriate court an order for the removal of the junked vehicle or junked vehicle part, which shall include a description of the vehicle or vehicle part and the correct identification and license number of the vehicle if the information is available at the site where the vehicle or vehicle part is located.

F. A junked vehicle or vehicle part may be disposed of by removal to a scrap yard, demolisher or any suitable site operated by the city for processing of scrap or salvage; however, it is unlawful for any person to reconstruct or make operable any junked vehicle after it has been removed.

G. Not later than the fifth day after the removal of a junked vehicle or junked vehicle part, the city shall notify the State Department of Highways and Public Transportation of the removal of the junked vehicle or junked vehicle part, so that the department may cancel the certificate of title. The notice must identify the vehicle or vehicle part. (Ord. 16138 § 2, 2005: Ord. 13061 § 2, 1997; Ord. 10710 § 1, 1991; Ord. 9971 § 3, 1990: Ord. 8652 (part), 1986; prior code § 11-48)

9.08.040 Exceptions.

This chapter shall not apply to:

A. A vehicle or vehicle part that is completely enclosed within a building in a lawful manner where it is not visible from the street or other public or private property; or

B. A vehicle or vehicle part that is stored or parked in a lawful manner on private property in connection with the business of a licensed vehicle dealer or junkyard; or

C. An unlicensed, operable or inoperable antique or special interest vehicle stored by a collector on the collector's property, if the vehicle and the outdoor storage area are maintained in a manner so that they do not constitute a health hazard and are screened from ordinary public view by means of a fence, rapidly growing trees, shrubbery or other appropriate means. Covering an unlicensed, operable or inoperable special interest vehicle or antique vehicle with a tarp or other similar material does not properly screen the vehicle. (Ord. 13061 § 3, 1997; Ord. 9971 § 4, 1990: Ord. 8652 (part), 1986; prior code § 11-49)

9.08.050 Enforcement authority.

A. The procedures provided for in this chapter must be administered by the environmental services department, except that the removal of a vehicle or vehicle part from property may be by any duly authorized person.

B. Whenever necessary to make an inspection to enforce any of the provisions of this chapter, or whenever the inspector has reasonable cause to believe that there exists upon any premises any condition or code violation which makes such vehicle or vehicle part in violation of this chapter, the inspector may enter such premises at all times to inspect the same or to perform any duty imposed upon the inspector by this chapter; provided, that if the premises are occupied, he shall first present proper credentials and request entry, and if the premises are unoccupied, he shall first make a reasonable effort to locate the owner or other persons having charge or control of the premises and request entry. If entry is refused, the inspector shall have recourse to every remedy provided by law to secure entry.

C. When the inspector has obtained a proper inspection warrant or other remedy provided by law to secure entry, no owner or occupant or any other persons having charge, care or control of any premises shall fail or neglect, after proper request is made as herein provided, to promptly permit entry thereon by the inspector for the purpose of inspection and examination pursuant to this chapter. (Ord. 16138 § 3, 2005: Ord. 13152 § 49, 1997; Ord. 13061 § 4, 1997; Ord. 9971 § 5, 1990: Ord. 8652 (part), 1986; prior code § 11-50)

9.08.060 Enforcement.

If the public nuisance is not removed and abated and no hearing is requested within the ten-day period provided for herein, the environmental services department may file a complaint concerning the public nuisance in an appropriate court. (Ord. 16138 § 4, 2005: Ord. 13152 § 50, 1997: Ord. 13061 § 5, 1997: Ord. 9971 § 6, 1990: Ord. 8652 (part), 1986; prior code § 11-51)

9.08.070 Violation—Penalty.

If a person is found guilty of maintaining a public nuisance as provided in this chapter, that person shall be punished by a fine not to exceed two hundred dollars and the court shall order removal and abatement of the nuisance. Should the person charged with maintaining a public nuisance as provided in this chapter, plead guilty to the charge and pay the fine established by the court for such offense, the court shall declare the junked vehicle or junked vehicle part a public nuisance and order removal and abatement of the nuisance. All orders under this section must include a description of the vehicle and the correct identification number and license number of the vehicle if the information is available at the site. (Ord. 9971 § 7, 1990: Ord. 8652 (part), 1986; prior code § 11-52)

Chapter 9.10

MULBERRY TREES

Sections:

9.10.010 Planting and selling.

9.10.020 Enforcement.

9.10.030 Abatement.

9.10.040 Penalties.

9.10.010 Planting and selling.

As of September 1, 1992, it is unlawful to plant any mulberry tree within the city. Further, it is unlawful for any mulberry trees to be sold within the city after September 1, 1992. (Ord. 10519 (part), 1991)

9.10.020 Enforcement.

A. The procedures provided for in this chapter shall be administered by regularly salaried, full-time employees of the department of environmental services or police department.

B. Whenever necessary to make an inspection to enforce any provisions of this chapter, or whenever the inspector has reasonable cause to believe that there exists upon any premises any condition or code violation of this chapter, the inspector may enter such premises at all reasonable times to inspect the same or to perform any duty imposed upon the inspector by this chapter; provided, that if such premises be unoccupied, the inspector shall first make a reasonable effort to locate the owner or other persons having charge or control of the premises and request entry. If such entry is refused, the inspector shall have recourse to every remedy provided by law to secure entry.

When the inspector shall have first obtained a proper inspection warrant or other remedy provided by law to secure entry, no owner or occupant or any other person having charge, care or control of any premises shall fail or neglect, after proper request is made as herein provided, to promptly permit entry thereon by the inspector for the purpose of inspection and examination pursuant to this chapter. (Ord. 16812 § 7 (part), 2007; Ord. 10519 (part), 1991)

9.10.030 Abatement.

A. As an additional means of enforcing this chapter, and regardless of whether or not any person is convicted of a misdemeanor for the violation of this chapter, the inspector is authorized to notify the owner of the existence of mulberry trees in violation of this chapter, and that the mulberry trees must be removed within ten days after receipt of such notice. Such notice shall state further that if the condition is not corrected within ten days from the service of such notice, the city may, without further notice, abate the violation by removing the trees and charge the cost of expense incurred in doing such work to the owner of such property, and fix a lien thereon as provided by this ordinance.

B. Such notice shall be in writing and be delivered in person or sent by certified mail with return receipt requested to the owner, or to any one or more of the owners if the land be owned jointly or in common, or to any agency having authority to lease, rent, sell, manage or take care of the land. If, after reasonably diligent efforts, the person to be so notified cannot be found, notice shall be given by publication in a newspaper of general circulation two times within ten consecutive days.

C. The person given such notice, or any person having an interest in the property, shall, if he so requests within ten days of receipt of the notice, be given a hearing before the director of the department of environmental services, or designee to show cause, if there be any, why the order should not be enforced.

D. If the owner or agent fails to remove the mulberry trees within ten days after receipt of notice, or within ten days after constructive service of notice the director of the department of environmental services, or designee shall arrange to have the trees removed by any satisfactory means and assess the cost of such removal against the property owner. Notice, service of which shall be

as provided for in subsection B of this section, stating the cost to the city or other person or entity to clean the property, including labor costs, administrative costs of inspection and reinspection, transportation expenses and a reasonable allowance for use of equipment and materials, shall be sent in writing to the owner by the director of the department of environmental services, or designee or the city comptroller. The notice shall request payment to the city within sixty days of receipt by the owner, and the mayor and council shall be requested to pass a resolution declaring the cost to clean, plus the cost of recording the resolution, to be a lien on the property payable within ten days after adoption of the resolution, and thereafter bearing ten percent interest per annum until the debt is paid.

E. The city council may by resolution determine the actual cost of cleaning the property and abating the public nuisance, and declare the amount, plus the cost of recording the resolution, to be a lien on the property, payable within ten days after adoption of the resolution, and thereafter bearing ten percent interest per annum until paid. A copy of the resolution, authenticated by the acknowledgement of the city clerk, shall be filed for record in the office of the county clerk. The city tax assessor and collector also shall send a bill for the amount with all tax bills on the property until the debt is paid. (Ord. 16812 §§ 7 (part), 8 (part), 2007; Ord. 10519 (part), 1991)

9.10.040 Penalties.

Any person violating any provision of this chapter shall be deemed guilty of a class C misdemeanor and punished by a fine not to exceed five hundred dollars, and if such violation is a continuous one, each day's violation shall constitute a separate offense. In addition to any penalties provided for in this chapter, this chapter is enforceable by injunction. (Ord. 10519 (part), 1991)

Chapter 9.11

TREE CARE

Sections:

9.11.010 General provisions.

9.11.010 General provisions.

A. Purpose. The purpose of this chapter is to promote and protect the public health, safety, and general welfare by providing for the regulation of the planting, maintenance, and removal of trees located on public property and to prohibit nuisances or hazards caused by trees located on private and public property within the limits of the City of El Paso.

B. Applicability. This chapter applies to all trees located within public property and to trees located on public or private property that create a hazardous condition or nuisance to the general public.

C. Arborist. The arborist shall work with the parks and recreation department and the department of transportation to accomplish all duties that may be required to comply with this chapter of the city code.

D. Definitions. The following definitions apply under this chapter:

1. "Arboricultural Specifications Manual" means the manual containing regulations and standards for the planting, maintenance, and removal of trees located on public property. The manual shall be approved by the city manager or designee.

2. "Damage" means and includes, but not be limited to, the uprooting of a tree, severance of the root or branch system, the compaction of soil around a tree, a substantial change in the natural grade above a root system or around a trunk, or excessive pruning of living tissue.

3. "Public property" means all grounds owned and controlled by the City of El Paso and where the city has the responsibility of maintenance.

4. "Public tree" means any tree with at least two-thirds of its trunk on public property.

5. "Topping" means the severe reduction of the tree's size using heading cuts that shorten limbs or branches back to a predetermined crown size or limit with the result of reducing the natural canopy or disfigure the tree.

6. "Tree" means any self-supporting woody perennial plant typically having a mature trunk(s) diameter of at least three inches measured at twelve inches above grade.

7. "Utility" means public utilities, businesses or organizations in the business of supplying communications services, electrical energy, gas, heat, steam, water, or sewage disposal and treatment.

E. Arborist. The city arborist shall:

1. Administer the provisions of this chapter;

2. Administer the community forestry action plan;

3. Assist the board of parks and recreation in carrying out the duties and responsibilities as specified in Section 2.20.050 C. of this Code; and

4. Administer and, in consultation with the tree board, periodically review and revise as necessary the provisions of the Arboricultural Specifications Manual.

F. Trees located on public property.

1. Destruction or damage of trees prohibited. It is unlawful for any person to intentionally damage, cut, carve, abuse, poison or otherwise harm or injure any tree located on public property. This section does not apply to persons authorized by the city who are taking actions necessary for the preservation and safety of the public or the proper care or maintenance of any tree in accordance with the Arboricultural Specifications Manual. The City of El Paso and its authorized agents, employees, and contractors shall have the authority to trim or remove any trees within public property.

2. Maintenance of trees.

a. The city may plant, prune, maintain and remove trees, plants and shrubs within the lines of all public property, as are necessary to preserve the aesthetic value of such public areas and for the health and safety of the public and trees. Such planting, maintenance or removal will be done in accordance with Arboricultural Specifications Manual.

b. Utilities. No public or private tree other than those species that may attain a mature height no greater than ten feet below an existing overhead utility wire may be planted under or within ten feet of any overhead utility wire on public property. Tree limbs that grow near high voltage electrical conductors shall be maintained clear of such conductors in compliance with the franchise agreements between the city and the utility company.

c. Tree topping. No tree located on public property shall be topped. Trees severely damaged by storms or other causes, or certain trees under utility wires or other obstructions where other pruning practices are impractical may be crown reduced where necessary to protect the public health, safety and welfare.

d. Tree protection zone. Whenever city department plans to do construction work around any public tree, proper safe guards and root protection zones as outlined in the Arboricultural Specifications Manual must be approved by the city arborist.

e. Jurisdiction over public property. The directors of the department of transportation and parks and recreation department or their designees shall have the power to perform accepted tree care in accordance with the Arboricultural Specifications Manual. If any tree or any part thereof is in unsafe condition, or is injurious to the common good, or to the sewer pipes, pavements or improvements, or is infested by disease or insects which are dangerous to other trees, the city arborist may remove such trees or part thereof, or spray such tree, or order such tree, or part thereof removed.

G. Trees located on private property. Public nuisances on private property. It is unlawful for a property owner to cause, create, keep, or otherwise permit trees that are dead, or that have transmissible disease infections or insect infestations on private property. Trees that are dead trees or that have transmissible disease infections or insect infestations are declared a nuisance.

1. Authority of city. The city may order that the property owner or agent of the owner of any private property containing a tree(s) that is dead or infected by transmissible disease or infested with insects, remove in the case of a dead tree, or treat or allow the city to treat, the infected or infested tree(s) located on private property. Upon complaint or observation meriting further inspection, the city shall have the authority to enter upon private lands to make field inspections, including the removal of specimens for any laboratory analysis that may be necessary to determine the presence of a transmissible infection or infestation.

2. Issuance of order. When the city determines that a tree is dead or that the tree has an infectious disease or insect infestation, the city shall assess the need for immediate action to curb a hazardous condition in the case of a dead tree, or spread of the infection or infestation to other trees. If the dead tree is determined by the city to pose a hazardous condition, or if infection or infestation warrants immediate action to prevent spread to other trees, the city may order the property owner to immediately treat, remove or dispose of the dead or infected or infested trees, or allow the city to do so. If the dead tree or the infection or infestation does not warrant immediate action, the city may order that the property owner or agent of the owner treat, or remove and dispose of dead or infected or infested tree within a specified time, but not less than thirty days from the date of the order. The city's order shall be delivered by certified mail (return receipt requested) or by hand delivery to the property owner, or to any agency having the authority to lease, rent, sell, manage or take care of the property on which the tree at issue originates. If the city's order cannot be hand delivered, or the property owner's address cannot be ascertained from the records recorded in the central appraisal district, the city's order may be provided by publication at least once in a newspaper of general circulation, by posting the order on or near the front door of the main building on the property where the tree at issue originates or by posting the order on a placard attached to a stake driven into the ground on the property where the tree at issue originates, if the property contains no buildings. In the sole discre-

tion of the city, if the owner or agent of the owner does not satisfactorily complete the necessary work within the time allowed by the city's order, the city may enter upon the property to treat, to remove, or to destroy the dead or infected or infested tree(s) by approved practice.

3. Property owner appeal of order to appeal board. If the property owner wishes to appeal the city's order on the basis that the tree is not dead or infested or infected, such appeal must be received by the City Manager or designee within ten days of receipt of the city's order. The appeal must be in writing. Once the appeal is received by the City Manager or designee, the City Manager or designee shall notify the appeal board so that the board may schedule a date for the appeal to be heard within thirty days of the City Manager's receipt of said appeal. The appeal board shall consist of the City Arborist and two directors designated by the City Manager. An official from the Texas Forest Service may serve as an ex-officio member, without the right to vote, and he shall not be counted for purposes of establishing a quorum. The City Manager or designee will be responsible for notifying the property owner of the appeal date, providing all the necessary documents to the board, and conducting the appeal. The board shall render a decision based on all the evidence and documentation presented. The City Manager or designee shall notify the property owner of the board's decision in the form of a written report indicating the board's findings and the decision.

4. Further appeal to district court. The board's decision is final unless within twenty calendar days from the date of the board's decision, the property owner files an appeal in district court.

5. City abatement of infestation or infection or removal of a dead tree. If the property owner fails to complete any work required to be done by the city within the time specified, the city may cause the work to be done and the cost of the same shall be assessed against the property owner. Any notice given pursuant to this section shall state that if the work required is not done within the time specified, the city will cause the same to be done at the expense of the property owner. A statement of the costs incurred by the city shall be mailed to the property owner and such statement shall be paid within thirty days of the date of mailing thereof. If any property owner is unable to pay the cost of such work within thirty days, he may enter into an agreement for the payment of the same in monthly installments. If the property owner fails to pay the costs incurred by the city or fails to enter into an agreement for payment of the costs and pay such cost in accordance with the agreement, civil action by the city to recover the costs may be pursued and the city attorney is authorized, without further authorization from city council, to institute any civil suit necessary to recover the costs incurred by the city, to include costs associated with the civil suit.

H. Any person who shall cause, create, keep, or otherwise permit a nuisance declared under this chapter or any person who intentionally damages, cuts, carves, abuses poisons or otherwise harms or injures any tree located on public property shall be guilty of a misdemeanor, and upon conviction thereof shall be fined as provided in Sections 1.08.010, 1.08.020 and 1.08.030. Each day that such nuisance shall continue shall constitute a separate offense; provided, the imposition of a penalty hereunder shall not abrogate the right of the city to cause the abatement of any nuisance. (Ord. 16812 § 9, 2007; Ord. 16657 § 1, 2007)
(Ord. 17204, § 3, 9-22-2009; Ord. No. 17392, § 1, 8-24-2010, eff. 9-1-2010; Ord. No. 17740, § 1, 3-6-2012; Ord. No. 17804, § 1, 6-5-2012, eff. 6-11-2012; Ord. No. 18448, § 1, 12-8-2015)

Chapter 9.12

FOOD AND FOOD HANDLING ESTABLISHMENTS

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Article I. General Provisions

9.12.005 Texas Food Establishment Rules—Adopted.

The City of El Paso adopts by reference The Texas Food Establishment Rules as adopted, currently or amended, by the Executive Commissioner of the Health and Human Services Commission found in 25 Texas Administrative Code, Chapter 228 regarding the regulation of food establishments in this jurisdiction, a copy of which, authenticated by the city clerk and on file in the city clerk's office is adopted in addition to Chapter 9.12, as fully as if copied at length in Title 9 (Health and Safety), Chapter 9.12.

(Ord. 17162, § 1, 8-11-2009; Ord. No. 18450, § 1, 12-15-2015)

9.12.007 Applicability.

This chapter shall not apply to the following, as they are not considered to be food establishments under 25 Texas Administrative Code Section 228.2 Definitions, Subsection 57(D):

A. A food product or food service establishment that offers only prepackaged foods that are not time/temperature controlled for food safety;

B. A produce stand that only offers whole, uncut fresh fruits and vegetables;

C. A food processing plant;

D. A cottage food industry;

E. An area where cottage food is prepared, sold or offered for human consumption;

F. A Bed and Breakfast Limited Facility; or

G. A private home that receives catered or home-delivered food.

This chapter does not affect small-scale food businesses as defined in Chapter 437, Section 437.0063 of the Texas Health and Safety Code. Section 437.0063 of the Texas Health and Safety Code is adopted by reference.

(Ord. No. 18202, § 1, 7-1-2014; Ord. No. 18450, § 2, 12-15-2015; Ord. No. 019783, § 1, 8-19-2025)

9.12.010 Definitions.

In this chapter, unless the context requires a different definition:

"Adult foster care home/private care home" means an establishment operated in the home which cares for no more than four adults over the age of twenty-one, physically and/or mentally handicapped persons.

"Authorization" means a certificate issued to charitable or non-profit establishments demonstrating compliance with applicable laws.

"Booklet" means literature developed and/or printed by the food inspection program for sale to the public.

"Care facility" means any establishment in which care services are provided to recipients regardless of age whether or not the facility charges for the services offered.

"Care recipient" means a person receiving care services as defined in this Section.

"Care services" means services provided of a protective nature which may include, but are not limited to, responsible supervision and/or limited assistance with routine living functions, hygienic

assistance, self-administration of medication and supervision of meal regimen for a person not related to the owner or operator of the facility.

"Caterer" means a person whose business is to provide food services at private social events. Within the meaning of this Code, catering is a function of the restaurant business and such food services are provided at non-restaurant locations. A caterer may not engage in the business of a temporary, seasonal or recurrent establishment without first obtaining the applicable permit.

"Central preparation facility" means a fixed food product or a fixed food service establishment in which food, containers or supplies are kept, handled, prepared, packaged or stored for temporary, recurrent or mobile establishments.

"Charitable" or "nonprofit organization" means a person who owns or operates an establishment in which the proceeds are used for charitable or philanthropic purposes and without personal financial gain to the participants.

"Department" means the City of El Paso's Department of Public Health.

"Director" means director of the department of public health, or designee.

"Duplicate permit" means a certified copy of the original permit issued by the director.

"Establishment" means food product and food service establishments, including temporary, recurrent, seasonal, mobile, outdoor market, nonprofit, kiosk, and care facilities, and excluding a food product or food service establishment that offers only prepackaged foods that are not time/temperature controlled for food safety, a produce stand that only offers whole, uncut fresh fruits and vegetables, a food processing plant, a cottage food industry, an area where cottage food is prepared, sold or offered for human consumption, a bed and breakfast limited facility, or a private home that receives catered or home delivered-food as set forth in 25 Tex. Admin. Code § 228.2 Definitions, Subsection 57(D).

"Equipment" means an article that is used in the operation of an establishment such as a freezer, grinder, hood, ice maker, meat block, mixer, oven, reach-in refrigerator, scale, sink, slicer, stove, table, temperature measuring device for ambient air, vending machine, or warewashing machine; not including items used for handling or storing large quantities of packaged foods that are received from a supplier in a cased or overwrapped lot, such as hand trucks, forklifts, dollies, pallets, racks, and skids.

"Event" or "celebration" means a publicly accepted social event or celebration such as parades, walkathons, authorized street sales, fiestas, holidays, bazaars and religious celebrations. An event cannot be more than fourteen consecutive days.

"Exposed food" means any raw, cooked or processed food open to contamination by insects, dust, dirt, filth or any other harmful or deleterious substance.

"Extensive remodel" means a change or modification of food preparation, utensil washing, food serving and restroom areas or major modifications of other areas of the establishment such as seating and waste disposal areas.

"Family" means a group of people related by blood, marriage or adoption and living together and functioning as a single housekeeping unit for twenty-four hours a day; or a group of not more than five persons not so related, but joined together by common interests or friendship and so living together and functioning as a single housekeeping unit for twenty-four hours a day. A family may gather to enjoy family and friends in a private setting where meals are provided for family and friends without having to obtain a food permit. The term does not include persons who are adults over the age of twenty-one, physically and/or mentally handicapped who are unable to care for their own needs and receive care services, whether or not the services are provided for profit; or an individual living alone in a housekeeping unit of which he has control.

"Food" means any exposed or unexposed raw, cooked or processed edible substance; ice, beverage or ingredient used or intended for use or for sale in whole or in part for human consumption.

"Food-contact surface" shall include 1) a surface of equipment or a utensil with which food normally comes into contact; or 2) a surface of equipment or a utensil from which food may drain, drip, or splash: a) into a food; or b) onto a surface normally in contact with food.

"Food handler" means an individual who works in any establishment including but not limited to hospitals, nursing homes, and schools, and directly works with unpackaged food, food equipment or utensils, or food-contact surfaces, and participates in serving, preparing or storing of food, or participates in handling or washing equipment and utensils in the normal course of business.

"Food handler course" means a course of study approved by the director and designed to provide basic instruction to food handlers on food handling, preparing and storing techniques.

"Food product establishment" means a commercial establishment in which food is manufactured, packaged, stored or distributed for human consumption. The term does not include a food service establishment, mobile, temporary, recurrent, seasonal, outdoor market and care facilities.

"Food protection management course" means a course of study designed to instruct owners, managers or persons in charge of the requirements of the Texas Food Establishment Rules, Chapter 9.12 Food and Food Handling Establishments and Food Regulation Course Material. Owners, managers or persons in charge of food service establishments, food product establishments, care facilities, recurrent and mobile establishments handling exposed potentially hazardous food are required to attend.

"Food protection management personnel" means an owner, manager or person in charge of an establishment certified as a food protection manager or able to respond correctly to questions relating to specific food operations as promulgated by the director. At least one food protection management personnel must be present at the establishment at all times while open for business.

"Food service establishment" means any place where food is prepared and intended for individual portion service, and includes the site at which individual portions are provided. The term includes any such place regardless of whether consumption is on or off the premises and regardless of whether there is a charge for the food. The term does not include private homes where food is prepared or served for individual family consumption.

"Health and sanitary inspection" means a site visit to determine compliance with requirements of general health and sanitary guidelines.

"Home child care facility" means an establishment which at any time provides care for no more than a total of twelve children under fourteen years of age, of which the caretaker's own children shall also be counted in the total number allowed.

"Hospitality" means cordial coffee reception for guest at no cost to the guest.

"Kiosk" means an establishment that is a fixed or temporary structure, one hundred square feet or less in size, which handles only precooked or ready-to-eat exposed food. A kiosk is not limited to a single fixed or temporary structure. There can be multiple fixed or temporary units, or a combination of both, joined to form a structure not to exceed one hundred square feet. The definition includes structures that operate on either a permanent or a temporary basis, regardless of whether the structure is connected to a sewer system or water system. When a permanent connection to water is not feasible, a kiosk will be subject to 25 Tex. Admin. Code § 228.221(7) (8), (9), and (10).

"Mobile establishment" means a vehicle-mounted food handling establishment designed to be readily movable.

"Outdoor market" means an establishment at which seasonal sales of prepackaged non-potentially hazardous foods such as uncut fruits, vegetables and legumes takes place. This operation must occur on private property with written consent from the owner or on public property with written consent of the governmental entity under whose jurisdiction said property exists, and no

foods may be sold, offered for sale or exposed for sale on any portion of the property that is located within one hundred feet of the closest edge of the paved portion of an arterial as that term is defined and used in Section 13.20.040 of this Code. A proper health permit must be acquired. The establishment shall not be permanent.

"Packaged" means bottled, canned, cartoned, securely bagged, or securely wrapped, whether packaged in a food establishment or a food processing plant; and does not include a wrapper, carry-out box, or other nondurable container used to containerize food with the purpose of facilitating food protection during service and receipt of the food by the consumer.

"Permit" means a written approval, including an authorization issued to non-profits in lieu of a permit, provided by the director.

"Personal care home" means an establishment operated in a home that cares for five or more physically and/or mentally handicapped adults unrelated to the provider.

"Plan review" means a review of plans to ensure compliance with applicable laws. Such plans are to be submitted for new or extensively remodeled establishments.

"Potentially hazardous food" means a food that requires time and temperature control for safety to limit pathogen growth or toxin production, which includes, but is not limited to, a food of animal origin, including fresh shell eggs, that is raw or heat-treated; a food of plant origin that is heat-treated or consists of raw seed sprouts; cut melons; and garlic-in-oil mixtures that are not modified in a way that results in mixtures that do not support pathogen growth.

"Private social event" means an event not freely available to the general public; including but not limited to weddings, birthday parties, anniversaries, company functions, etc. Attendance is by invitation only and cannot be more than fourteen consecutive days.

"Recurrent establishment" means an establishment that operates for a period of one year in conjunction with an approved flea market on Fridays, Saturdays, Sundays and national holidays as observed by the city or special privilege assigned by the city.

"Re-inspection" means a required inspection of an establishment when receiving a failing score or if an imminent health hazard exists. The term includes failure to meet scheduled inspection appointment of mobile establishments handling exposed foods.

"Rejected" means any tableware, equipment or utensil which is in such condition or construction that creates a hazard to food quality or wholesomeness.

"Seasonal establishment" means an establishment that operates for a period of no more than six consecutive months in conjunction with a regularly occurring event, on a weekly or monthly basis, but not occurring for more than five consecutive days, which event has received necessary approval from the City of El Paso. This type of permit may not be renewed for six months from expiration date.

"Site assessment" means a site visit to determine compliance with requirements of an establishment permit. The assessment includes a second visit if necessary, to ensure requirements are met prior to a permit being issued.

"Utensil" means a food-contact implement or container used in the storage, preparation, transportation, dispensing, sale, or service of food, such as kitchenware or tableware that is multiuse, single-service, or single-use; gloves used in contact with food; temperature sensing probes of food temperature measuring devices; and probe-type price or identification tags used in contact with food.

"Wholesome" means in sound condition, clean, free from adulteration and suitable for use as human food.

(Ord. 17162, § 1, 8-11-2009; Ord. No. 17544, § 1, 4-26-2011; Ord. No. 18202, § 2, 7-1-2014; Ord. No. 18450, § 3, 12-15-2015; Ord. No. 19167, § 1, 4-13-2021)

Article II. Permits and Licenses

9.12.020 Required—Transfer—Display.

A. No person who does not have both a valid permit issued by the director and a valid license issued by the city shall operate an establishment. To obtain a permit and a license involves a two-step process which is discussed later in this chapter. A private social event is exempt from the requirements of this chapter. Neither a permit nor license issued under this article is transferable from one person to another or from one location to another. The permit and license as required shall be posted in every establishment in a location conspicuous to consumers.

B. A person planning to construct, convert an existing structure or remodel an existing establishment shall submit plans to the director for review and approval at least ten working days prior to construction.

C. This chapter does not relieve a person from any requirements of any other part of the El Paso City Code.
(Ord. 17162, § 1, 8-11-2009)

9.12.030 Permit—Application—Contents.

Any person desiring to operate an establishment shall submit a written application for a permit on forms provided by the director. Such application shall include:

A. Name, address, telephone number, facsimile number, cell phone number, e-mail address and building services - zoning approval stamp for each location of the proposed establishment;

B. Name, address, telephone number, facsimile number, cell phone number, e-mail address of the owner of the proposed establishment; if the owner(s) is a corporation, association or partnership, the names and addresses of the officers or partners;

C. Name, address and telephone number of the establishment manager;

D. Name, date, title and signature of the applicant;

E. Any other information reasonably required by the director;

F. In addition to the above requirements, any mobile establishment must provide the license number and vehicle registration number for the proposed mobile establishment; and any recurrent, seasonal, temporary, mobile, or nonprofit organization must provide a schedule of all dates, times and locations for proposed food operation and request either a permit for handling exposed food or for handling unexposed food.

G. The director must receive a completed temporary establishment application and the applicable fee(s) at least seventy-two hours prior to the start of any event. If the required application and fee(s) are submitted less than seventy-two hours prior to the start of any event, a late penalty will be imposed equal to twice the applicable license fee(s).
(Ord. 17162, § 1, 8-11-2009)

9.12.035 Permit—Application fee.

A permit application-processing fee identified in the adopted budget resolution for the current fiscal year or other appropriately adopted resolution by the city council shall be assessed at the time of application submittal. Said fee shall allow the application to remain pending with the director for up to twelve months during the approval process. A subsequent processing fee identified in the adopted budget resolution for the current fiscal year or other appropriately adopted resolution by the city council must be paid prior to the expiration of said twelve-month period in order for the application to remain pending with the director, or the application shall be voided. Temporary and seasonal applications are exempt from the processing fee and shall be maintained for no more than thirty days.
(Ord. 17162, § 1, 8-11-2009)

9.12.040 Permit—Approval process.

A. Upon receipt of a completed application for a permit and payment of the established application processing fee, the director shall conduct the appropriate inspections. The city manager and

his designees, including but not limited to the code enforcement division and the building official, shall conduct an inspection of all plumbing and plumbing fixtures of the establishment prior to the site assessment and after payment of the established fee. If the plumbing inspection is approved, then the site assessment is conducted. The director shall approve issuance of a permit if the assessment reveals compliance with the requirements of this chapter and compliance with all city ordinances governing the proposed operation.

B. If the plumbing inspection is approved, then the site assessment is conducted. The director shall approve issuance of a permit if the assessment reveals compliance with the requirements of this chapter and compliance with all city ordinances governing the proposed operation. The established site assessment fee shall be paid at the time the permit application is submitted and must be paid prior to the site assessment occurring. One or more additional established site assessment fees will be required for follow up site assessments for any establishment that does not qualify to receive the permit at the time of an assessment visit.

C. During the site assessment of a mobile establishment regulated under Chapter 12.46 of the El Paso City Code, conducted on and after June 15, 2001, the director shall inspect the flashing or blinking signals required under that chapter, and no permit shall be issued unless such signals are present and operational.

(Ord. 17162, § 1, 8-11-2009; Ord. No. 17392, § 2, 8-24-2010, eff. 9-1-2010; Ord. No. 17544, § 2, 4-26-2011)

9.12.050 Permit—Contents.

Upon successful completion of the permit approval process, the director shall issue a permit to the establishment. The director shall state on the issued permit the name of the owner, the name of the establishment, permit or authorization number issued, date of issuance, date of expiration if applicable, assessed license category number if applicable and permit restrictions as follows:

A. No restrictions. Establishment meets all minimum physical requirements for full food service operation;

B. Restricted to prepackaged food, exposed food with limited preparation and, based on equipment, complex preparation of potentially hazardous food is limited;

C. Restricted to prepackaged food only, and includes potentially hazardous food;

D. Restricted to prepackaged food only, and excludes potentially hazardous food;

E. Restricted to prepackaged and exposed non-potentially hazardous food;

F. Restricted to the operation of a care facility utilizing prepackaged foods and exposed food including potentially hazardous foods requiring no further cooking with limited preparation. Food service activities other than those required for the care facility are prohibited;

G. Restricted to the operation of a care facility utilizing prepackaged and exposed non-potentially hazardous food requiring no further cooking with limited preparation. Food service activities other than those required by the care facility are prohibited;

H. Full food service operations limited to those required for the care facility;

I. Prepackaged food, no potentially hazardous foods, occupying two hundred square feet or less including coffee provided at bed and breakfast limited and extended, as defined in the Texas Food Establishment Rules, in covered urn or carafe served for hospitality purposes only. All coffee and condiments used in the coffee service must be prepackaged and non-dairy prepackaged creamers must be used. All utensils must be single service items designed for one time one person use.

J. Restricted to the operation of a meat establishment, warehouse or food processing plant that manufactures, packages, labels or stores food for human consumption, does not provide food directly to a consumer and is under direct supervision of an authorized Federal or State inspection agency.

K. Permit issued in conjunction with a special privilege license approved by city council and expiring at the time that the special privilege license expires.

(Ord. 17162, § 1, 8-11-2009)

9.12.060 License—Permit prerequisite—Fee.

To obtain a license, the permittee shall present the permit to the city license section and pay to the city the license fee identified in the adopted budget resolution for the current fiscal year or other appropriately adopted resolution by the city council for said license for each location at which an establishment is operated. Due to the nature of the operation of mobile, recurrent, seasonal, outdoor market and temporary establishments, license fees must be paid at time of application.
(Ord. 17162, § 1, 8-11-2009)

9.12.070 License—Categories—Term.

A. The following license categories are subject to the license fee identified in the adopted budget resolution for the current fiscal year or other appropriately adopted resolution by the city council. The license term is for one year from the date of issuance unless otherwise specified within this chapter.

B. Meat establishment, warehouse or food processing plant under direct supervision of an authorized federal or state inspection agency and whose product bears the inspection legend of the agency under whose supervision the meat was slaughtered, fabricated, processed, prepared or stored; however, if other food activities, not directly supervised by federal or state inspection agencies, are present in the establishment, it shall be licensed in accordance with subsection K. of this section.

C. Unexposed temporary, recurrent and seasonal establishments.

1. Temporary establishment handling unexposed food licenses are valid for no more than fourteen consecutive days in conjunction with a single event or celebration.

2. Recurrent establishment handling unexposed food.

3. Seasonal establishment handling unexposed food are valid for no more than six consecutive months in conjunction with a regularly occurring event.

D. Exposed temporary, recurrent and seasonal establishments.

1. Temporary establishment handling exposed food licenses are valid for no more than fourteen consecutive days in conjunction with a single event or celebration.

2. Recurrent establishment handling exposed food.

3. Seasonal establishment handling exposed food licenses are valid for no more than six consecutive months in conjunction with a regularly occurring event.

E. Establishment operating as a home child care facility.

F. Establishment operating as a day care center to provide day care for more than twelve care recipients.

G. Any charitable or nonprofit organization handling food in any manner is exempt from permit and license fees; this does not exempt these facilities from complying with other requirements of this chapter.

H. Mobile establishment handling unexposed food.

I. Mobile establishment handling exposed food.

J. Establishment operating as a kiosk.

K. The fee for all other establishments is based on overall square footage of the establishment area according to the following schedule:

1. Under 3,000 square feet.
2. 3,001 to 6,000 square feet.
3. 6,001 to 9,000 square feet.
4. 9,001 or more square feet.

Original license fees will be based on the square footage of the establishment area at the time it commences operation. Fees will be adjusted if the area is remodeled, and fees shall be increased or decreased according to any change in square footage category of the establishment area.

L. Duly organized outdoor markets that are used exclusively for the purpose of selling produce, plus a fee for each vendor.

M. Reserved.

N. Care facility in which care is provided for twenty-four hours a day for four or less care recipients.

O. Care facility in which care is provided for twenty-four hours a day for five to eight care recipients.

P. Care facility in which care is provided for twenty-four hours a day for nine to eighteen care recipients.

(Ord. 17162, § 1, 8-11-2009; Ord. No. 18202, § 3, 7-1-2014; Ord. No. 19167, § 2, 4-13-2021)

9.12.080 Suspension—Notification.

A. The director or designee may, without warning, notice or hearing suspend the permit and license to operate the establishment if:

1. Conditions exist in an establishment that constitute an imminent health hazard;

2. The establishment operation has serious or repeated violations of any of the requirements of this chapter.

B. Whenever a permit and license are suspended the holder of the permit and license, manager or the person in charge shall be notified in writing. The notice shall:

1. State that the permit and license are, upon service of notice, immediately suspended;

2. Order the establishment to immediately cease operation; and

3. Set out the corrective measures to be completed for reinstatement of permit and license.

4. In lieu of permit and license suspension, an establishment may choose to voluntarily cease food operations until such time as all imminent health hazards and violations pertaining to the establishment sanitation and condition are in compliance. The establishment may not resume food operations until authorized by the director through re-inspection. Inspection personnel shall obtain approval for the voluntary closure through the program manager or designee in the program manager's absence.

C. The director may rescind the permit and license suspension, by written notice, when the reasons for suspension no longer exist. The re-inspection fee identified in the adopted budget resolution for the current fiscal year or other appropriately adopted resolution by the city council must be paid upon receipt of said written notice, which will appear in an inspection report. After payment of said fee to the city, the establishment will then be allowed to resume food operations.

D. Hazard analysis and critical control point inspection is required of any establishment receiving a failing score three or more times in one calendar year or any establishment confirmed as the source of a food borne disease outbreak. A fee identified in the adopted budget resolution for the current fiscal year or other appropriately adopted resolution by the city council must be paid upon notification contained in an inspection report. An establishment not paying the required fee must cease operations until the fee is paid and inspection is scheduled with the director.

(Ord. 17162, § 1, 8-11-2009)

9.12.090 Revocation—Notification.

A. The director may revoke a permit and license by written notice to the holder of the permit and license, manager or the person in charge, when:

1. An establishment continues to operate while the permit and license are suspended;

2. The establishment operation has serious or repeated violations of any of the requirements of this chapter;

3. The establishment or any of its employees has interfered with the director in the performance of its duty.

B. Whenever the permit and license are revoked, the holder of the permit and license, manager or the person in charge shall be notified in writing that:

1. The permit and license are, upon service of notice, immediately revoked;

2. Order the establishment to immediately cease operation;

3. Set out the reasons as to why the permit and license are revoked.

C. Whenever a revocation of permit and license has become final, the holder of the revoked permit shall make an application for a new permit and license in accordance with the procedures established in Sections 9.12.020 through 9.12.060.
(Ord. 17162, § 1, 8-11-2009)

9.12.100 Suspension or revocation—Appeal.

A. A person who has a permit or license issued under this title, who has been served with a suspension or revocation notice of said permit or license, may appeal the director's action to the city manager as provided herein. Within ten business days of issuing a suspension or revocation notice, the director or designee shall prepare a report indicating the reasons for the suspension or revocation, and shall provide a copy to the person. The director's decision is final unless within ten calendar days from the date of receiving the director's report, the person files with the city clerk a written appeal to the city manager specifying reasons for the appeal. Said appeal shall also include a written rebuttal to the director's report.

B. The city manager or his designated deputy city manager shall review the director's report and the appellant's rebuttal. The city manager or designee may allow the appellant to make an oral presentation or submit additional rebuttal. The city manager or designee shall make a ruling on the appeal within fifteen calendar days after the appeal has been filed.

C. The city manager or designee shall sustain, reverse or modify the action of the director and shall notify the appellant of his decision in writing. The decision of the city manager or designee is final.
(Ord. 17162, § 1, 8-11-2009)

9.12.110 Service of notice.

Any notice provided for in this chapter is properly served when it is delivered to the owner, manager, or person in charge or when it is sent by certified mail, return receipt requested, to the owner at the last known address.
(Ord. 17162, § 1, 8-11-2009)

9.12.120 Display of business name.

Only the officially permitted and licensed business name or designation shall be posted or displayed by an establishment and its vehicles. All other names, designations or signs must be changed, covered or removed. The owner of an establishment must change all signs, labels and advertising to the new officially recognized business name or designation before the permit and license change become effective. Care facilities must meet all zoning requirements.
(Ord. 17162, § 1, 8-11-2009)

9.12.125 Fee adoption and display.

Fees required under this chapter shall be as adopted from time to time by the city council, as set forth in the adopted budget resolution for the current fiscal year or other appropriate resolution of the city council. Such fees shall be used to defray the costs of providing the various services under this chapter.

Fees for booklets and publications created by the department of public health shall be as set forth in the adopted budget resolution for the current fiscal year or other appropriate resolution of the city council, or may be established by the department director in such an amount as to recover the costs of the production of such booklet or publication.

A copy of all fees adopted by city council and fees for booklets and publications that may be established by the director under this chapter shall be displayed at the office of the director of the department of public health or at such other location in the department as established by the director.
(Ord. 17162, § 1, 8-11-2009)

Article III. Food Handler Identification Card

9.12.130 Required.

A. An individual desiring to work in an establishment as a food handler, as defined in Section 9.12.010, must obtain from the director or designee, a food handler certificate or other proof

of course completion of the director's food handler classroom course within thirty days from the date of employment or successfully complete and provide proof of completion of a food handler course approved by the director.

1. The requirements of this section do not apply to:

a. An individual working in an establishment that sells or offers only prepackaged foods;

b. An individual working in a produce stand that only offers whole, uncut fresh fruits and vegetables; and

c. An individual working in a food processing plant, as provided in 25 Texas Administrative Code § 228.2(58).

2. The requirements of this section do not apply to individuals who are not food handlers as defined in this chapter.

B. A person may opt out of the course described in Section 9.12.130A. by taking the director's online food handler course and corresponding examination and must score at least seventy percent proficiency on said examination. The required fee for the online course registration and examination shall be submitted prior to the time that the person takes the online course. A person who fails to score at least seventy percent on said exam may pay the fee and retake the exam.

C. A person who does not take the director's food handler classroom course or the online course and corresponding exam, may fulfill the training requirements of this chapter by providing to the director or designee, within the timeframe described in Section 9.12.130A., proof of completion of a food handler course approved by the director. A food handler course shall be approved by the director if said course is accredited by the American National Standards Institute or by the Department of State Health Services and is listed on their registry. No fee shall be charged by the director for completion of a food handler training course that is not provided by the director and that is accredited by the American National Standards Institute or by the Department of State Health Services and is listed on their registry.
(Ord. 17162, § 1, 8-11-2009; Ord. No. 17649, § 1, 9-20-2011; Ord. No. 18202, § 4, 7-1-2014; Ord. No. 18450, § 4, 12-15-2015; Ord. No. 18732, § 1, 10-3-2017)

9.12.140 Application—Contents.

To obtain a food handler certificate or other proof of food handler training course completion provided by the director or designee, an individual must register on an application furnished by the director or designee and as part of the application must:

A. State name, address, sex, date of birth and any other information reasonably required;

B. Pay the training course fee identified in the adopted budget resolution for the current fiscal year or other appropriately adopted resolution by the city council; and

C. Sign the application.

D. This section shall not apply to an individual who has proof of completion of a food handler training course described in Section 9.12.130C.
(Ord. 17162, § 1, 8-11-2009; Ord. No. 17649, § 2, 9-20-2011; Ord. No. 18732, § 2, 10-3-2017)

9.12.150 Application—Issuance of food handler's receipt—Completion of required course prerequisite to issuance of food handler certificate or other proof of completion.

After an applicant complies with Section 9.12.140, the applicant shall be issued a food handler's receipt and be registered to attend the next available classroom course, or the applicant shall comply with Section 9.12.130B or 9.12.130C. The receipt is valid as a food handler's identification only until the applicant attends the classroom course. The director or designee shall issue to the applicant a food handler certificate or other proof of food handler training course completion provided the applicant:

A. Attended the director's classroom course; or

B. Successfully passed the examination given by the director or designee, on the online course content.
(Ord. 17162, § 1, 8-11-2009; Ord. No. 17649, § 3, 9-20-2011; Ord. No. 18732, § 3, 10-3-2017)

9.12.160 Required instruction.

The required instruction shall consist of sanitary handling of food and applicable regulations of establishment operations.
(Ord. 17162, § 1, 8-11-2009)

9.12.170 Term.

The food handler certificate or other proof of food handler training course completion is valid for a two-year period from the date of issuance by the director or designee.
(Ord. 17162, § 1, 8-11-2009; Ord. No. 17649, § 4, 9-20-2011; Ord. No. 18732, § 4, 10-3-2017)

9.12.180 Renewal.

An individual desiring to renew an expired food handler certificate or other proof of food handler training course completion must:

A. Comply with the provisions of Sections 9.12.140 and 9.12.150.

B. Register for a food handler course no more than forty-five and no less than thirty days prior to the expiration of the current food handler certificate or other proof of food handler training course completion.

C. Comply with the provisions of Section 9.12.130C.
(Ord. 17162, § 1, 8-11-2009; Ord. No. 17544, § 3, 4-26-2011; Ord. No. 17649, § 5, 9-20-2011; Ord. No. 18732, § 5, 10-3-2017)

9.12.190 Maintained.

The food handler certificate or other proof of food handler training course completion is to be maintained in the food establishment at all times in a location readily accessible and available for inspection in either hard copy or electronic format, and not solely placed in an employee file.
(Ord. 17162, § 1, 8-11-2009; Ord. No. 17649, § 6, 9-20-2011; Ord. No. 18732, § 6, 10-3-2017)

9.12.200 Fees nonrefundable.

All fees paid to the director under this chapter are nonrefundable.
(Ord. 17162, § 1, 8-11-2009)

9.12.210 Duplicate issuance.

An individual who has misplaced a valid food handler certificate or other proof of food handler training course completion provided by the director or designee or who needs more than one certificate or other proof of food handler training course completion resulting from a course provided by the director, must obtain a food handler certificate or other proof of food handler training course completion duplicate from the director or designee by paying the fee identified in the adopted budget resolution for the current fiscal year or other appropriately adopted resolution by the city council for each certificate or other proof of food handler training course completion. In the event an individual who requires a duplicate food handler certificate or other proof of food handler training course completion that was issued upon completion of a food handler course not provided by the director or designee and that was certified by the American National Standards Institute or by the Department of State Health Services, that individual must follow the requirements of the issuer in order to acquire a duplicate certificate or other proof of food handler training course completion.
(Ord. 17162, § 1, 8-11-2009; Ord. No. 17649, § 7, 9-20-2011; Ord. No. 18732, § 7, 10-3-2017)

Article IV. Food Service Protection Management Certification

9.12.220 Required.

Persons desiring to work in an establishment as food protection management personnel, as defined in Section 9.12.010, shall obtain a food protection management certificate from the director within sixty days from the day of his or her employment, or successfully complete and provide proof of completion of a food protection manage-

ment certification program approved by the director. At least one food protection management person per establishment must be certified. However, if a person left in charge by food protection management personnel can respond correctly during a food inspection to the questions listed in the Texas Food Establishment Rules, under Section 228.32 Knowledge, that person need not obtain certification as a food protection manager. The person(s) responsible for food operations within a care facility and whose primary duties include, but are not limited to, supervision of kitchen personnel, food handling, food preparation and storage, is required to obtain a food protection management certificate. Persons providing proof of completion of a food protection management certification program, approved by the director, must present the certificate to the director and pay the fee identified in the adopted budget resolution for the current fiscal year or other appropriately adopted resolution by the city council.
(Ord. 17162, § 1, 8-11-2009; Ord. No. 17649, § 8, 9-20-2011; Ord. No. 18450, § 5, 12-15-2015)

9.12.230 Issuance—Eligibility—Term.

A food protection management certificate shall be issued to each person who successfully completes the food protection management certification program conducted by the director. Such certificate is valid for a two-year period and shall be renewed within sixty days of the expiration date to remain valid. Food protection management personnel who fail the food protection management certification test shall be required to retake and successfully pass the food protection management certification test within thirty days, or he or she will be required to retake the food protection management certification course and pay the fee as described in Section 9.12.240 B. A food protection management certificate issued by the director upon completion of a recognized food protection management course not provided by the director but approved by the director will be valid for two years from date of issuance.
(Ord. 17162, § 1, 8-11-2009; Ord. No. 17649, § 9, 9-20-2011)

9.12.235 Duplicate issuance.

An individual who has misplaced a valid food protection management certificate or who needs more than one certificate must obtain a food protection management certificate duplicate from the director for the fee identified in the adopted bud-

get resolution for the current fiscal year or other appropriately adopted resolution by the city council for each certificate.
(Ord. 17162, § 1, 8-11-2009; Ord. No. 17649, § 10, 9-20-2011)

9.12.240 Application—Contents.

To obtain a food protection management certificate or to register a recognized certification not provided by the director but approved by the director, an individual must apply on a form furnished by the director and as part of the application must:

A. State his or her name, address, phone number, sex and date of birth.

B. Pay a food protection management certificate fee identified in the adopted budget resolution for the current fiscal year or other appropriately adopted resolution by the city council for the department food protection management course or examination in lieu of the food protection management course, for proof of completion of a recognized course; and

C. Sign the application.

D. Individuals may opt out of the food protection management course offered by the director upon request if the required food protection management course registration examination is passed with at least an eighty-five percent proficiency and the fee identified in the adopted budget resolution for the current fiscal year or other appropriately adopted resolution by the city council is submitted. A person who does not pass with at least an eighty-five percent proficiency must then register and pay the city fee identified in the adopted budget resolution for the current fiscal year or other appropriately adopted resolution by the city council to attend the food protection management certification course.
(Ord. 17162, § 1, 8-11-2009; Ord. No. 17649, § 11, 9-20-2011)

9.12.245 Food protection management personnel—Training.

A. Food protection management personnel successfully completing the food protection management course shall provide training to all food handlers in appropriate areas.

B. Training in the areas must be sufficient to ensure the food handler is proficient in the specific operation assigned.

C. Training records shall be maintained in a location readily available at the time of inspection and not solely in employee files.
(Ord. 17162, § 1, 8-11-2009)

9.12.250 Renewal—Fee.

A food protection management certificate must be renewed at the end of two years and within sixty days from expiration or the expiration specified on other recognized certification. If no expiration date is specified, the certification shall expire two years from date of issuance.
(Ord. 17162, § 1, 8-11-2009; Ord. No. 17649, § 12, 9-20-2011)

9.12.260 Maintained

When the owner, manager or person-in-charge is off premises, the food protection management certificate issued by the director is to be maintained in the establishment in a location readily available for inspection and not solely placed in an employee file.
(Ord. 17162, § 1, 8-11-2009; Ord. No. 17649, § 13, 9-20-2011)

Article V Personnel

9.12.270 Food safety course.

An individual required to attend a food safety course must attend the next available course designed to reemphasize specific food handling techniques.
(Ord. 17162, § 1, 8-11-2009)

9.12.280 Application contents.

To attend a food safety course an individual must register on a form provided by the director and as part of the application must:

A. List name, address, sex and date of birth, place of employment and any other information reasonably required;

B. Pay the training course fee identified in the adopted budget resolution for the current fiscal year or other appropriately adopted resolution by the city council;

C. Sign the application.

(Ord. 17162, § 1, 8-11-2009)

Article VI. Food Care

9.12.310 Frozen desserts.

A. All frozen dessert, mix, imitation frozen dessert and nondairy frozen dessert possessed with intent to sell, offered for sale or sold, or stored by an establishment must comply with the Texas Health and Safety Code, Chapter 440, Frozen Desserts Manufacturer Licensing Act and Texas Administrative Code Title 25 Chapter 217 Milk and Dairy Frozen Desserts Manufacturing Specifications and Requirements.

B. Mix, frozen dessert, limitation frozen dessert and nondairy frozen dessert containing more than fifty thousand colonies of bacteria per ml on a standard plate count (S.P.C.) or contain more than forty coliform colonies per ml on a coliform test are not acceptable for human consumption.

C. Imitation frozen dessert mix (dry), and nondairy frozen dessert mix (dry) containing more than one thousand colonies of bacteria per ml on a standard plate count (S.P.C.) or containing more than ten coliform colonies per ml on a conform test are not acceptable for human consumption.

D. Frozen desserts and mixes must be sampled from the dispensing equipment and samples submitted for analysis to a laboratory certified by the Texas Department of State Health Services for the examination of finished Grade A Milk and Milk Products. The director may sample at unannounced intervals at no cost to the establishment.

E. Evidence of laboratory analysis must be posted on each frozen dessert dispenser.

(Ord. 17162, § 1, 8-11-2009)

9.12.330 Meat and poultry.

Fresh meat, meat byproduct or meat food product is misbranded unless it complies with the recommended name in the publication entitled Uniform Retail Meat Identity Standards, published by the Department of Merchandising, National Livestock and Meat Board, a copy of which, authenticated by the signatures of the city clerk and is on file in the city clerk's office, and is adopted as fully as if copied at length herein.

(Ord. 17162, § 1, 8-11-2009)

9.12.340 Ground meat advisory.

A. Signs in English and Spanish requiring ground meat to be served fully cooked will be conspicuously posted for consumers to read.

B. Signs in English shall read:

"El Paso's City Ordinance and Texas Law require that ground meat (fish, beef, pork, poultry, etc.) must be consumed fully cooked due to potential health risks associated with consumption of these products when not fully cooked. If you have special health risks consult your physician."

C. Signs in Spanish shall read:

"La ley de la ciudad de El Paso, Texas require que las carnes molidas (pescado, res, puerco, pollo, etc.) sean consumidas bien cocidas debido a riesgos asociados si estos alimentos no estan bien cocidos. Si tuviese alguna duda consulte a su medico."

D. Signs shall be made available by the director at the cost of printing and handling identified in the adopted budget resolution for the current fiscal year or other appropriately adopted resolution by the city council.

E. An establishment shall not offer ground meat cooked other than well-done for human consumption, unless specifically requested by the consumer. "Well-done" shall be measured as the temperature specified in the Texas Food Safety Rules.

(Ord. 17162, § 1, 8-11-2009)

9.12.360 Storage—Refrigerated.

Frozen foods shall be kept frozen and shall be stored at a temperature of minus eighteen degrees Celsius (zero degrees Fahrenheit) or below.

(Ord. 17162, § 1, 8-11-2009)

9.12.400 Transportation.

A. During transportation, food and food utensils shall be kept in covered containers, completely wrapped or packaged so as to be protected from contamination. Foods in original individual packages do not need to be over wrapped or covered if the original package has not been torn or broken. During transportation, including transportation to another location for service or catering operations, food shall meet the requirements relating to food protection and food storage.

B. All vehicles, used for transporting food within the city must be clearly marked with letters not less than two inches high, indicating the name, address, city and state of the establishment. Mobile establishments must be marked with permit number issued by the director. In the case of an establishment with a readily recognizable registered trademark, only the trademark, city and state are necessary. All vehicles transporting foods requiring refrigeration must be provided with a mechanical refrigeration unit capable of maintaining the internal temperature of the food product at (five degrees Celsius or forty-one degrees Fahrenheit or below).

C. All vehicles transporting food requiring hot holding must be provided with hot holding units capable of maintaining the internal temperature of the food product at fifty-seven degrees Celsius or one hundred and thirty-five degrees Fahrenheit or above.
(Ord. 17162, § 1, 8-11-2009)

Article VII. Equipment and Utensils

9.12.420 Design and fabrication.

A. All equipment and utensils must meet standards set in the Texas Food Establishment Rules or certified by the director.

B. The director shall reject any equipment or utensil which is found in such condition as to constitute a potential hazard to public health, by tagging the item. When tagged, the item shall not be used for any purpose until such time as the deficiency has been corrected and the tag lawfully removed by the director.
(Ord. 17162, § 1, 8-11-2009)

9.12.490 Cleaning and sanitization—Clean-in-place equipment.

Rinsing, spraying or swabbing with a chemical sanitizing solution of twice the strength required for that particular sanitizing solution when used in immersion shall be used for clean-in-place equipment. Chemicals used for sanitization shall not have concentrations higher than the maximum permitted on the label specifications.
(Ord. 17162, § 1, 8-11-2009)

Article VIII. Sanitary Facilities and Controls

9.12.580 Plumbing.

All plumbing and plumbing fixtures must be approved by the building official of the city prior to permit issuance.
(Ord. 17162, § 1, 8-11-2009; Ord. No. 17392, § 3, 8-24-2010, eff. 9-1-2010)

9.12.600 Handwashing—Lavatory facilities.

A. Signs requiring employees to wash hands will be conspicuously posted at all handwashing lavatories.

B. Signs shall state, "all employees must wash hands and exposed portions of their arms for at least 20 seconds before returning to work."

C. Sign and lettering size shall be specified by the director.

D. Dispensers designed for soap and towels shall be provided at all handwashing lavatories.

E. Handwash lavatories in the establishment must be located within twenty-five feet of utensil washing areas, food preparation areas and serving areas. Distance measurement of twenty-five feet is defined as the walking path that an establishment employee must take to access the handwash lavatory. Restroom handwash lavatories are excluded from this consideration and may not be counted as part of the number of hand wash lavatories. The

twenty-five foot measurement must be within the room where utensil washing, food preparation and/or food serving takes place except that a handwash lavatory can be located five feet into another room that is not separated by physical doors.

F. Food handlers and food managers observed not practicing handwashing at prescribed times will receive one written warning prior to being required to attend a food safety course.

G. For violations of the handwashing requirement occurring subsequent to the warning, a food handler's or food manager's certificate will be confiscated and temporarily suspended at the time the handwashing violation occurs until a food safety course has been completed.

H. Said food employee can remain on the work schedule until the time of the class. If the class is not attended, the manager or owner must remove the employee from the work schedule.

I. If said employee is not removed from the work schedule, the manager and owner will be responsible if the employee is allowed to work without a valid food handler or food manager certificate.

J. A food handler's certificate or food manager's certificate will be revoked for one year for violating handwashing ordinance three times in one year. Upon such revocation, food employees must attend a food safety course, food handler's course or food manager's course as determined by the director prior to returning to work in the food industry.

(Ord. 17162, § 1, 8-11-2009; Ord. No. 17649, § 14, 9-20-2011)

Article IX. Construction and Maintenance of Physical Facilities (Reserved)

Article X. Miscellaneous Regulations

9.12.780 Care facility operations.

In a home child care facility or any care facility qualifying under zoning sections of this code, the director may authorize variations of the structural or equipment requirements of this chapter when there will be no threat to the public health and welfare. Nothing in this section shall exempt such establishments from other requirements of this chapter unless otherwise specified herein.

(Ord. 17162, § 1, 8-11-2009)

9.12.790 Establishments outside jurisdiction of city limits.

Food from establishments located outside the city limits may be sold inside the city limits if such establishments conform to the provisions of this chapter or to substantially equivalent provisions. To determine the extent of compliance with such provisions, the director may accept reports from regulatory authorities in jurisdiction where such establishments are located.

(Ord. 17162, § 1, 8-11-2009)

9.12.800 Mobile establishments.

A. Mobile establishments shall comply with the requirements of this chapter.

B. Mobile establishments handling exposed food must submit potable water samples at the time of application for analysis to a Texas Department of State Health Services certified laboratory.

C. Mobile establishments handling potentially hazardous foods must operate from a central preparation facility. The central preparation facility must have all necessary equipment to handle the approved activities. Central preparation facilities shall maintain a score of eighty-five percent or better on the annual food inspection report rating. A central preparation facility agreement form provided by the director is required and must be signed by the mobile establishment applicant and central preparation facility owner/operator. Central preparation facilities must notify the director to rescind this agreement if the mobile establishment does not conform to the provisions of said agreement.

D. Mobile establishments shall comply with the requirements of Chapter 12.46 of the El Paso City Code.

E. Mobile establishments shall comply with the industry standards for safe food storage and

handling found in the Texas Food Establishment Rules, located in the Texas Administrative Code, Chapter 228.
(Ord. 17162, § 1, 8-11-2009; Ord. No. 17544, § 4, 4-26-2011; Ord. No. 18450, § 6, 12-15-2015)

9.12.810 Temporary, recurrent and seasonal establishments.

A. Compliance required.

1. A temporary, seasonal or recurrent establishment shall comply with the requirements of this chapter. At a minimum, temporary establishments will meet the requirements as set forth in the Texas Food Establishment Rules. Temporary, recurrent and seasonal establishments handling potentially hazardous foods must operate from a central preparation facility. A fee for expedited services for temporary establishment applications submitted less than seventy-two hours prior to the start of an event shall be as identified in the adopted budget resolution for the current fiscal year or other appropriately adopted resolution by the city council. The central preparation facility must have all necessary equipment to handle the approved activities. Central preparation facilities shall maintain a score of eighty-five percent or better on the food inspection report rating. A central preparation facility agreement form provided by the director is required and must be signed by the temporary, seasonal or recurrent establishment applicant and central preparation facility owner/operator.

2. All food temperature requirements shall be met as contained in Section 228.71-228.74 of the Texas Food Establishment Rules for temporary, seasonal and recurrent establishments.

3. A mobile establishment that is operating under a valid mobile establishment permit is exempt from the requirement to obtain a separate permit to operate as a temporary, recurrent or seasonal establishment. However, if the temporary, recurrent or seasonal establishment vending opportunity falls on a date beyond the time covered for the mobile establishment's permit, the mobile establishment shall be required to obtain a separate permit to operate as a temporary, recurrent or seasonal establishment.

B. Restricted operations.

1. These provisions are applicable whenever a temporary, seasonal and recurrent establishment is permitted, under the provisions of subsection A. of this section, to operate without complying with all of the requirements of this chapter.

2. Food and food handling.

a. All foods for use in temporary, seasonal or recurrent establishments must be prepared in an establishment approved by the director.

b. The manager, owner or person in charge of a seasonal or recurrent establishment must acquire a valid food protection management certificate. All other employees in a seasonal or recurrent establishment handling food must obtain a valid food handlers certificate.

c. Receipts for all foods used in temporary, seasonal or recurrent establishments must be made available to the director upon request. Foods must be purchased from a source that has been previously inspected and approved by the Director.

d. Preparation of potentially hazardous foods in temporary, seasonal or recurrent establishments as close to the time of event as possible is required.

e. Ice that is consumed or that contacts food shall have been made under conditions meeting the requirements of this chapter. The ice shall be obtained only in chipped, crushed or cubed form and in single-use safe plastic or wet-strength paper bags filled and sealed at the point of manufacture. Ice shall be held in these bags until it is dispensed in a way that protects it from contamination.

C. Equipment.

1. Equipment in temporary, seasonal and recurrent establishments shall be located and installed in a way that prevents food contamination and that also facilitates cleaning the establishment. Equipment and utensils shall be in good condition. The use of utensils not capable of being effectively washed and sanitized is prohibited.

2. Food contact surfaces of equipment in temporary, seasonal or recurrent establishments shall be protected from contamination by consumers and other sources. Where necessary to prevent contamination, effective shields for such equipment shall be provided.

3. Temporary, seasonal and recurrent establishments must provide hot and cold holding equipment for food. This equipment shall be adequate in number and capacity to provide food temperatures as specified under Section 228.71-228.74 of the Texas Food Establishment Rules.

4. Recurrent and seasonal establishments must provide a three-compartment sink for washing, rinsing and sanitizing equipment and utensils as needed.

5. A convenient handwashing lavatory shall be available in recurrent and seasonal establishments for employee handwashing. This facility shall consist of hot and cold running potable water, soap and individual paper towels for recurrent and seasonal establishments. Temporary establishments must meet the requirements for handwashing contained in the Texas Food Establishment Rules.

D. Recurrent, seasonal and temporary establishments shall provide only single service articles for use by the consumer.

E. Recurrent and seasonal establishments shall provide enough hot and cold running potable water in the establishment for food preparation, washing, rinsing and sanitizing utensils and equipment, and handwashing. A heating facility located on the premises and capable of producing enough hot water for these purposes shall be provided. Recurrent and seasonal establishments will be required to submit potable water samples for analysis to a Texas Department of State Health Services certified laboratory prior to permitting. Temporary establishments must meet the requirements in the Texas Food Establishment Rules for potable water.

F. All sewage, including liquid waste, generated from temporary, seasonal or recurrent establishments shall be disposed of through an approved sanitary sewage system that is constructed, maintained and operated according to law.

G. Adequate size and number of waste containers to hold all the garbage and refuse that accumulates from temporary, seasonal or recurrent establishments is mandatory. Containers must be cleanable, leak proof and nonabsorbent. Waste containers inside these establishments must be provided with a tight-fitting lid.

H. Booth requirements for temporary, seasonal and recurrent establishments handling exposed food are as follows:

1. Walls and ceilings must be made of canvas, wood or other material that protects the interior of the booth from the weather.

2. Floors must be constructed of concrete or machine laid asphalt for seasonal and recurrent establishments. Temporary establishments must follow the Texas Food Establishment Rules relating to floors.

3. Outer openings of temporary, seasonal or recurrent establishments shall be protected against entry of insects and rodents by use of sixteen mesh per inch screens, properly designed and installed air curtains or other effective means when flying insects are problematic.

I. All persons engaged in food handling in these establishments shall comply with all personnel requirements as set forth in the Texas Food Establishment Rules.

J. All temporary, seasonal and recurrent establishments handling potentially hazardous foods must operate from a central preparation facility. The central preparation facility must have all necessary equipment to handle the approved activities and maintain a score of eighty-five percent or better on the annual food inspection report rating. The central preparation facility must be constructed and operated in compliance with federal, state and city regulations.

K. All violations in the case of temporary, seasonal or recurrent establishments must be cor-

rected within specified time. If violations are not corrected within such specified time the establishment shall immediately cease food operations.

L. The director shall restrict the number of establishments operating out of a central preparation facility if such operations pose public health concerns.

(Ord. 17162, § 1, 8-11-2009; Ord. No. 17544, § 5, 4-26-2011; Ord. No. 17649, § 15, 9-20-2011; Ord. No. 18450, § 7, 12-15-2015)

Article XI. Enforcement

9.12.820 Responsibility of the director of public health.

The director shall be responsible for enforcement of this chapter.

(Ord. 17162, § 1, 8-11-2009)

9.12.830 Inspection—Frequency.

A. The director shall conduct inspections of establishments located within the jurisdiction of the city, as often as are reasonably necessary for proper enforcement of this chapter, including, but not limited to compliance with Subsection 9.12.080D.

B. Re-inspection of an establishment is conducted when a failing score is received or an imminent health hazard exists.

(Ord. 17162, § 1, 8-11-2009)

9.12.840 Inspection—Access.

Whenever necessary to inspect, to enforce any of the provisions of this chapter, or whenever the director has reasonable cause to believe that there exists in any building or upon any premises any condition or code violation which makes food handled therein unsafe, dangerous or hazardous, the director or an authorized representative may enter such building or premises at all reasonable times to inspect the same or to perform any duty imposed upon the director by this chapter; provided, that if such building or premises be occupied, the director shall first present proper credentials and request entry; and if such building or premises be unoccupied, first make a reasonable effort to locate the owner or other persons having charge or control of the building or premises and request entry. If such entry is refused, the director shall have recourse to every remedy provided by law to secure entry.

When the director first obtains a proper inspection warrant or other remedy provided by law to secure entry, no owner or occupant or any other persons having charge, care or control of any building or premises shall fail or neglect, after proper request is made as herein provided, to promptly permit entry therein by the director for the purpose of inspection and examination pursuant to this chapter.

This inspection and examination shall include the establishment's records pertaining to employees and to food and supplies purchased, used and on hand. Food handler and food protection management certificates will be verified against work schedules or time sheets.

(Ord. 17162, § 1, 8-11-2009; Ord. No. 17649, § 16, 9-20-2011)

9.12.850 Inspection—Form—Public disclosure of findings.

The director shall record the findings of the inspection on an inspection form. A copy of the completed inspection form shall be furnished to the owner, manager or person in charge of the establishment at the time of inspection. The completed inspection form is a public document and shall be made available for public disclosure to any person who requests it according to law.

(Ord. 17162, § 1, 8-11-2009)

9.12.860 Violation—Correction—Time limits.

The completed inspection form shall specify a reasonable period of time for the correction of the violations found; the correction of the violations shall be accomplished within the period specified, in accordance with the following provisions:

A. If imminent health hazards exist the establishment shall immediately cease food operations.

Operations shall not be resumed until it is shown on a re-inspection that conditions responsible for the order to cease operations no longer exist.

B. In the case of temporary, seasonal or recurrent establishments, all violations shall be corrected as soon as possible, not to exceed twenty-four hours. If violations are not corrected within twenty-four hours, the establishment shall immediately cease food operations until authorized to resume by the director.

C. The inspection form shall state that failure to comply with any time limits for corrections may result in suspension or revocation of permit and license, or in cessation of food activities, and that any violation of the provisions of this chapter shall constitute a misdemeanor and be punished by a fine not to exceed two thousand dollars.

D. The inspection form shall state that the person receiving notice of suspension or revocation of permit and license, or a notice of cessation of food activities, or a notice of violation of this chapter may appeal by following the procedure provided in Section 9.12.100.

E. An establishment within the city that is licensed, permitted and supervised by the United States Department of Agriculture or by the Texas Department of State Health Services is exempt from in-plant inspections under this chapter; however, such establishments are subject to permit, license, food protection management certificate and food handler certificate requirements. All food product, not on the premises, is subject to applicable requirements of this chapter.
(Ord. 17162, § 1, 8-11-2009; Ord. No. 17649, § 17, 9-20-2011)

9.12.870 Violation—Citation issuance.

The director shall have the power to issue misdemeanor citations to any person violating any provisions of this chapter.
(Ord. 17162, § 1, 8-11-2009)

9.12.875 Violation—Owners and managers.

A person commits an offense if he or she is an owner or manager of an establishment or identifies himself as an owner or manager of an establishment, and:

A. Permits an individual who does not have a current valid food handler certificate to work in or for the establishment as a food handler for more than thirty days;

B. Permits an individual who does not have a current valid food handler certificate to work in or for the establishment as a food protection management person for more than sixty days; or

C. The person or his employees violate the provisions of Section 9.12.800, mobile establishments.
(Ord. 17162, § 1, 8-11-2009; Ord. No. 17649, § 18, 9-20-2011)

9.12.880 Food examination and condemnation.

A. If the director discovers food for which there is probable cause to believe is in violation of this chapter, a written hold order shall be placed on such food. The director shall tag, label or otherwise identify any food subject to a hold order. No food subject to a hold order shall be used, served or moved from the establishment. The director shall permit storage of the food under conditions specified in the hold order, unless storage is not possible without risk to the public health, in which case immediate destruction shall be ordered and accomplished.

B. A person who has been served with a hold order or destruction order may appeal the director's action to the city manager as provided herein. Within three business days of taking such action, the director shall prepare a report indicating the reasons for the hold order or destruction order, and shall provide a copy to the person to whom the hold order has been issued. The director's decision is final unless within three calendar days from the date of receiving the director's report, the person to whom a hold order has been issued files with the city clerk a written appeal to the city

manager specifying reasons for the appeal. Said appeal shall also include a written rebuttal to the director's report. The hold order or destruction order shall state that a request for a hearing shall be filed by written notice to the city manager or his designated deputy city manager within three days of the report and that if no appeal is requested, the food shall be destroyed. If a request for an appeal is received, the appeal shall be held within five days after receipt of the request.

C. The city manager or his designated deputy city manager shall review the director's report and the appellant's rebuttal. The city manager or designee may allow the appellant to make an oral presentation or submit additional rebuttal. The city manager or designee shall make a ruling on the appeal within seven business days after the appeal has been filed.

D. The city manager or designee shall sustain, reverse or modify the action of the director and shall notify the appellant of his decision in writing. Where necessary, the city manager or designee shall determine to vacate the destruction order or direct the person to destroy such food, which shall constitute the ruling on the appeal and which shall be done within seven days after the appeal has been filed. The decision of the city manager or designee is final.

E. If the food under hold order or destruction order can be brought into compliance with the provisions of this chapter, the director shall allow the food to be used, served or moved from the establishment.

(Ord. 17162, § 1, 8-11-2009)

9.12.890 Violation—Penalty.

A. Any person violating any provision of this chapter shall be deemed guilty of a misdemeanor and punished by a fine not to exceed two thousand dollars, and if such violation continues, each day's violation shall constitute a separate offense. In addition to any penalties provided for herein, this chapter is enforceable by injunction.

(Ord. 17162, § 1, 8-11-2009)

Chapter 9.16

NUISANCES

Sections:

9.16.010	**Designated.**
9.16.020	**Occupations injurious to health of persons residing in vicinity thereof unlawful.**
9.16.030	**Abatement by chief of police when responsibility cannot be fixed.**
9.16.040	**Penalty for creating nuisances.**

9.16.010 Designated.

The following acts and conditions, among others, are declared to constitute nuisances and are prohibited within the city limits and within five thousand feet thereof, but such enumeration shall not be deemed to be exclusive.

A. All dead, decaying or putrid carcasses, flesh, fish, fowls or vegetables; all deposits of manure or other unwholesome substances or flesh of any kind or description whatever; all filthy or offensive water or slops when thrown or conducted into or upon any street, alley, public ground or any enclosure so as to be unwholesome or offensive, or liable to become unwholesome or offensive;

B. All privies, slaughterhouses, or slaughterpens that are offensive from use; all markets, cellars, stores or other buildings or places which are not kept clean and free from filthy or unwholesome substances;

C. All deposits or substances that are offensive or liable to engender disease;

D. Every trade, business or occupation injurious to the comfort of those who reside in the vicinity;

E. Any box, barrel or receptacle containing water or slope which becomes stagnant, offensive or unwholesome from any cause;

F. Any article or substance placed upon any street, sidewalk, alley, gutter, drain or public ground, except such as are permitted by ordinance of the city;

G. Any unwholesome food, liquor or adulterated medicines;

H. All cattle, horse or hog pens, stables or enclosures in which any cattle, horses or hogs may be kept or confined, which from use have become offensive;

I. Reserved;

J. Any nauseous, foul or putrid liquors or substances likely to be nauseous, foul, offensive or putrid, discharged, placed, thrown or conducted into, or upon any street, alley or public ground;

K. The wrongful casting, throwing or depositing of any filth, substance or thing into any public or private well or cistern;

L. All gates or doors opening upon any public street or sidewalk upon which it opens, unless such gate or door be so constructed or hung as to be self-closing;

M. The keeping or leaving open of any cellar or drop-door in or upon any sidewalk, street, thoroughfare or public passway;

N. The making, keeping or permitting of any uncovered opening or hole in or across any sidewalk or public passway, street or public thoroughfare unless the same is done with proper authority and is sufficiently guarded and protected to insure the safety of all persons passing by, over or near the same;

O. The sweeping or depositing of paper, filth or rubbish of any kind from business houses or from private premises into the drains or gutters, or into or upon any sidewalk, street or alley or public thoroughfare, and failing to take off or remove the same;

P. The burning of any hair, leather, rags or substances of any kind in the city which may cause or produce an offensive smell, smoke or odor to the annoyance of persons living in the vicinity or to persons passing the same on any public thoroughfare in the city; and

Q. Defecating or urinating upon the streets, alleys or public grounds, or in any place that may be seen from a private residence or by persons passing along the streets, alleys or public thoroughfares;

R. The keeping of domestic animals or birds in such a manner as to endanger the public health or as to annoy neighbors by the accumulation of droppings and putrescible materials which causes foul and offensive odors. The keeping of domestic animals or birds which habitually deposits body wastes upon or destroys by chewing, scratching, digging or otherwise, the property of other than that of the owner of such animal or bird;

S. The keeping of any female animal in heat that is not adequately confined by the owner so as to present the attracting of male animals except for supervised and confined breeding purposes. (Ord. 14280 § 1, 1999; Ord. 11238 § 1, 1992; prior code § 12-47)

9.16.020 Occupations injurious to health of persons residing in vicinity thereof unlawful.

It is unlawful and constitutes a nuisance for any person in the city to carry on any trade, business or occupation injurious to the health of those who reside in the vicinity, or to suffer any substance which shall have that effect to remain on the premises in his possession. (Prior code § 12-48)

9.16.030 Abatement by chief of police when responsibility cannot be fixed.

Whenever any nuisance is found in any place in this city, for the removal, abatement or destruction of which no one can be held liable under the provisions of this code, the chief of police may remove, abate or destroy the same at the expense of the city. (Prior code § 12-52)

9.16.040 Penalty for creating nuisances.

Any person who shall cause, create, keep, permit or otherwise be the author of a nuisance shall be guilty of a misdemeanor, and upon conviction thereof shall be fined as provided in Sections 1.08.010, 1.08.020 and 1.08.030, and each day that such nuisance shall continue shall constitute a separate offense; provided, the imposition of a penalty hereunder shall not abrogate the right of the city to cause the abatement of any nuisance. (Prior code § 12-51)

Chapter 9.20

SOCIAL HOST ACCOUNTABILITY ORDINANCE

Sections:

9.20.010 Title.

9.20.020 Legislative purpose.

9.20.030 Legislative findings.

9.20.040 Definitions.

9.20.050 Prohibition of gatherings involving underage drinking.

9.20.060 Protected activities.

9.20.070 Violation(s)—Civil penalties.

9.20.080 Enforcement.

9.20.090 Reserved.

9.20.100 Hearings on the imposition of civil penalty—Appeals.

9.20.110 Billing and civil penalty—Enforcement.

9.20.010 Title.

This chapter shall be known as the "Social Host Accountability Ordinance".
(Ord. No. 18617, § 1, 12-6-2016)

9.20.020 Legislative purpose.

The purposes of this chapter are to:

A. Protect the public health, safety, and general welfare;

B. Promote the reduction of underage drinking by imposing a civil penalty on persons or entities responsible for gatherings where alcohol is consumed by, served to, or in the possession of underage persons; and

C. Facilitate the enforcement of laws prohibiting the serving of, consumption of, or possession of alcoholic beverages by underage persons at such gatherings.
(Ord. No. 18617, § 1, 12-6-2016)

9.20.030 Legislative findings.

The recitals set forth above are incorporated herein as legislative findings by the El Paso City Council.
(Ord. No. 18617, § 1, 12-6-2016)

9.20.040 Definitions.

For the purpose of this chapter, the following definitions shall apply:

A. "Alcohol" means ethyl alcohol, hydrated oxide of ethyl, or spirits or wine, or whatever source by whatever process produced.

B. "Alcoholic beverage" means beer, alcohol, or any beverage containing more than one-half of one percent of alcohol by volume, which is capable of use for beverage purposes, either alone or when diluted, or as defined in the Texas Alcoholic Beverage Code, as amended.

C. "Gathering involving underage drinking" means a party or gathering of two or more persons at a residence or other private property or rented public property upon which any minor, is served, possesses, or consumes one or more alcoholic beverages.

D. "Intentionally" has the same definition and meaning as the term found in Tex. Penal Code §6.03, even though a violation of this chapter is civil in nature.

E. "Knowingly" has the same definition and meaning as the term found in Tex. Penal Code §6.03, even though a violation of this chapter is civil in nature.

F. "Minor" means any person under twenty-one years of age, or as otherwise defined by the Texas Alcoholic Beverage Code.

G. "Negligently" has the same definition and meaning as the term is defined for civil negligence.

H. "Recklessly" has the same definition and meaning as the term found in Tex. Penal Code §6.03, even though a violation of this chapter is civil in nature.
(Ord. No. 18617, § 1, 12-6-2016)

9.20.050 Prohibition of gatherings involving underage drinking.

A person commits a violation under this chapter if the following conditions are met at a gathering involving underage drinking:

A. He intentionally, knowingly, recklessly, or negligently facilitates underage drinking, except as allowed by the laws of the State of Texas; or

B. He is present while underage drinking is taking place, is over the age of twenty-one, has actual knowledge of or with reckless or negligent indifference should know underage drinking is taking place, except as allowed by the laws of the State of Texas; or

C. He intentionally, knowingly, recklessly, or negligently allows underage drinking, except as allowed by the laws of the State of Texas, at property which is under his care, custody or control; or

D. He is the person who paid for the rental of any premises, to include, but not be limited to, the following premises, and underage drinking takes place on that premises, except as allowed by the laws of the State of Texas:

1. A hotel or motel room;

2. An assembly hall or meeting room;

3. A common room of a dwelling unit used for a party (i.e., recreation room of an apartment building);

4. A site in a privately owned campground;

5. Privately owned vacant lot;

6. Privately owned agricultural land; or

7. Privately owned rural land whether occupied in whole or in part as a dwelling, or for a social function, and whether owned, leased, rented or used without compensation.

E. Exception to civil penalty: A person does not commit a violation under this chapter if a gathering involving underage drinking occurs on premises under that person's care, custody or control and said gathering was the result of a criminal trespass or an unauthorized use of said premises.
(Ord. No. 18617, § 1, 12-6-2016)

9.20.060 Protected activities.

This chapter shall not apply to activities protected by the First or Fourth Amendments to the United States Constitution.
(Ord. No. 18617, § 1, 12-6-2016)

9.20.070 Violation(s)—Civil penalties.

It shall be a civil violation to violate Section 9.20.050.

A. Civil Penalty.

1. A first violation of this chapter shall result in a notice of violation with a civil penalty of up to two hundred fifty dollars.

2. A second violation shall result in a notice of violation with a civil penalty of up to five hundred dollars.

3. A third or subsequent violation shall result in a notice of violation with a civil penalty of up to one thousand dollars.

B. In the event that the person who is in violation of this chapter is a juvenile, as defined by the laws of the State of Texas, then the juvenile and the parents or guardians of that juvenile will be jointly and severally liable for the civil violation. For a first violation, a parent or guardian who is not present at the residence or other private property at the time of the violation may be:

1. Notified through a written warning that a violation of this chapter occurred; and,

2. Shall only be liable for a second and any subsequent offense that occurs at the property.

3. Any violation that was overturned on appeal shall no longer count as a violation.

C. A person who commits a violation of this chapter who does not reside at a residence or other private property where a gathering involving underage drinking occurs may be:

1. Notified through a written warning of any gathering involving underage drinking that occurs at property he owns or controls; and,

2. Only liable for a second and any subsequent offense that occurs at the property.
(Ord. No. 18617, § 1, 12-6-2016)

9.20.080 Enforcement.

A. Peace officers employed by the City of El Paso are hereby authorized to issue a notice of violation and written warnings for a violation of this chapter.

B. Issuance of written violation. When a law enforcement officer makes a response to a gathering involving underage drinking, the officer may issue a notice of violation for violation of this chapter to any person who commits the violation.

C. Subsequent delivery of a notice of violation and warnings. A city police officer may issue a notice of violation or a warning to any person who commits the violation as identified by law enforcement within twenty days of the violation.

D. The police chief or designee may provide the person who commits the violation by personal delivery or by depositing it in the United States Postal Service mail within twenty days of the violation. The notice shall contain the following information:

1. The name(s) of the person(s) being assessed the penalty;

2. The address where the gathering involving underage drinking occurred;

3. The date and time of the incident;

4. The date and time of any previous warning or violation given pursuant to this chapter;

5. The date payment is due; and

6. The right to request an administrative hearing to challenge the imposition of a civil penalty, and the time for requesting that hearing.

(Ord. No. 18617, § 1, 12-6-2016)

9.20.090 Reserved.

9.20.100 Hearings on the imposition of civil penalty—Appeals.

A. Appointment of an Administrative Hearing Officer. The city council hereby appoints the municipal associate judge to act as the administrative hearing officer.

B. When the police department issues a written notice of violation pursuant to this chapter, said notice shall include the information required by Section 9.20.080 under this chapter. In the case of a person present at a gathering involving underage drinking, the notice will be directly given to the person who commits the violation. In the case of a person who was not present at the gathering, the notice will be given to the person by depositing it in the United States Postal Service mail to the address as identified by the police department. In the case of the parent of a juvenile receiving a notice of violation, the notice will be given to the parent by personal delivery or by depositing it in the United States Postal Service mail to the address provided by the juvenile at the time of the incident or other address as identified by the police department.

C. The written notice of violation will include a notice provision informing the person responsible for the gathering of his right to appeal the notice of violation by submitting a written notice requesting an administrative hearing before the municipal associate judge. The applicant, referred to as the appellant for purposes of the appeal, will submit the written statement to the police chief not later than the twentieth city business day after the date of the written notice of violation. The appellant's written statement requesting the appeal shall clearly state why the appellant contends that there is not a valid basis for the issuance of the notice of violation pursuant to this chapter.

D. If the appellant submits a written statement appealing the notice of violation, the police chief, or designee(s), will immediately contact the municipal associate judge in order to schedule a hearing. The notice of the hearing will specify a hearing date, not less than fifteen city business days nor more than thirty city business days after the date the appellant submits the written request for an administrative hearing. The municipal associate judge will conduct a hearing on the notice of violation. The hearing may be continued to a sooner or later date by agreement of the parties, and with the municipal associate judge's approval, or upon the finding of good cause by the municipal associate judge for the granting of an earlier or later hearing date.

E. At the hearing, the appellant will have the opportunity to present all of the appellant's arguments and to be represented by counsel at appellant's expense, present evidence and witnesses on his behalf, and cross-examine any of the police department's witnesses. The police chief, or designee, who may also be represented by counsel, bears the burden of proving the grounds for the notice of violation by a preponderance of the evidence. The hearing will take no longer than one business day, unless extended by agreement of the parties or at the request of either party, and with approval of the municipal associate judge, to meet the requirements of due process and the proper administration of justice.

F. The municipal associate judge will issue a written decision, to the respondent within five city business days from the completion of the hearing. The municipal associate judge's decision is final.

G. If the municipal associate judge's decision finds that no grounds exist for the notice of violation, the municipal associate judge will, contemporaneously with the issuance of the decision, order the police chief to immediately withdraw the notice of violation and notify the appellant in writing by mail of such action. If the decision is to uphold the notice of violation, the decision will become effective on the fourteenth calendar day after it is rendered. If the municipal associate judge upholds a notice of violation, the appellant has the following three options:

1. The appellant may pay the civil penalty.

2. The appellant may request the option to attend an alcohol education class as identified or approved by the director of the department of public health.

a. If the appellant requests the option to attend an alcohol education class, the final decision of the municipal associate judge shall be abated for ninety days to allow the appellant to complete said class. Upon the appellant's timely completion of said class and provision of proof of same to the municipal associate judge, the notice of violation which led to appellant attending the class shall be satisfied.

b. If the appellant fails to complete the alcohol education class within said ninety days, a civil penalty in lieu of said class shall be assessed upon the appellant, which civil penalty shall be paid within ten days.

3. The appellant may request the option to perform community service, and the final decision of the municipal associate judge shall be abated for ninety days to allow the appellant to fulfill their community service under the following criteria:

a. For a first violation, the person responsible for the gathering shall perform six hours of community service;

b. For a second violation, the person responsible for the gathering shall perform twelve hours of community service; and

c. For a third or subsequent violation, the person responsible for the gathering shall perform eighteen hours of community service.

d. Upon the appellant's timely completion of said community service and provision of proof of same to the municipal associate judge, the notice of violation which led to appellant providing the community service shall be satisfied.

e. If the appellant fails to complete the community service within said ninety days, a civil penalty in lieu of said class shall be assessed upon the appellant, which civil penalty shall be paid within ten days.

H. If the decision results in the withdrawal of a notice of violation as to a civil penalty, the withdrawal shall be effective only as to that specific violation, and any other violations of this chapter shall remain intact.

I. If the municipal associate judge's final decision upholds the notice of violation, the appellant must pay the applicable civil penalty within thirty days of the decision.

(Ord. No. 18617, § 1, 12-6-2016; Ord. No. 019643, § 1, 6-11-2024)

9.20.110 Billing and civil penalty—Enforcement.

A. The amount of civil penalty that remains pending may be the subject of a civil action brought by the city for recovery of such penalty.

B. The person who commits the violation must remit payment of the civil penalties to the city within forty-five days of the notice thereof. The payment of any such penalty shall be stayed upon a timely request for an administrative hearing made pursuant to this chapter.

C. City council shall have the authority to file any action or proceeding to recover such civil penalty, and take any other actions at law which he may deem necessary to recover same.

(Ord. No. 18617, § 1, 12-6-2016)

Chapter 9.24

MOSQUITO CONTROL

Sections:

9.24.010 Unlawful collections of water—Declared nuisances.

9.24.020 Unlawful collections of water—Examples.

9.24.030 Unlawful collections of water—Treatment methods.

9.24.040 Enforcement.

9.24.050 Violation—Penalty.

9.24.010 Unlawful collections of water—Declared nuisances.

It is unlawful for the occupant or owner of any premises in the city or within five thousand feet of the corporate limits thereof, or the agent of the owner, if the owner is a nonresident or absent from the city, to cause, suffer or permit any collection of standing or flowing water in which mosquitoes breed or are likely to breed on such premises, unless such collection of water is treated in the manner prescribed by the director of the department of environmental services or his duly authorized representative, so as to prevent the breeding of mosquitoes, and any such collection of water so unlawfully maintained is declared to be a nuisance. (Ord. 16812 § 19 (part), 2007; prior code § 12-44)

9.24.020 Unlawful collections of water—Examples.

The collections of water included within the terms of this chapter are those which are contained in ditches, ponds, pools, excavations, holes, depressions, cesspools, privy vaults, fountains, basements, cisterns, tanks, shallow wells, barrels, troughs (except horse troughs in frequent use), urns, cans, boxes, bottles, tubs, buckets, defective house roof gutters, tanks or flush closets or other similar places where water accumulates. (Prior code § 12-43)

9.24.030 Unlawful collections of water—Treatment methods.

The methods of treatment of any unlawful collections of water for the purpose of preventing the breeding of mosquitoes shall be approved by the director of the department of environmental services or his duly authorized representative and may be one or more of the following:

A. Screening with wire netting of at least sixteen meshes to the inch each way or any other material which will effectually prevent the ingress or egress of mosquitoes;

B. Complete emptying every four days of unscreened containers together with their thorough drying or cleaning;

C. Using an approved larvacide;

D. Covering completely the surface water with kerosene, petroleum or paraffin oil every four days;

E. Cleaning and keeping sufficiently free of vegetable growth and other obstructions and stocking with mosquito destroying fish; absence of half-grown mosquito larvae to be evidence of compliance with this measure;

F. Filling or draining to the satisfaction of the director of the department of environmental services or his duly authorized representative;

G. Proper disposal of tin cans, tin boxes, broken or empty bottles and similar articles likely to hold water;

H. Proper irrigation management of tracts of land and farm land so water does not stand in sufficient depth for a period of time that would result in hatch out of adult mosquitoes. (Ord. 16812 § 19 (part), 2007; prior code § 12-45)

9.24.040 Enforcement.

Whenever necessary to make an inspection to enforce any of the provisions of this chapter, the director of the department of environmental services or his authorized representative may enter any building or premises at all reasonable times to inspect the same or to perform any duty imposed upon the director of the department of environmental services by this chapter; provided, that if such building or premises be occupied, he shall first present proper credentials

and request entry; and if such building or premises is unoccupied, he shall first make a reasonable effort to locate the owner or other persons having charge or control of the building or premises and request entry. If such entry is refused, the director of the department of environmental services or his authorized representative shall have recourse to every remedy provided by law to secure entry.

When the director of the department of environmental services or his authorized representative shall have first obtained a proper inspection warrant or other remedy provided by law to secure entry, no owner or occupant or any other persons having charge, care or control of any building or premises shall fail or neglect, after proper request is made as herein provided, to promptly permit entry therein by the director of the department of environmental services or his authorized representative for the purpose of inspection and examination pursuant to this chapter. (Ord. 16812 § 19 (part), 2007; prior code § 12-42)

9.24.050 Violation—Penalty.

If any person responsible under the terms of this chapter for the existence of any condition which gives rise to the breeding of mosquitoes, refuses to take all necessary measures directed by the director of the department of environmental services of the city or his duly authorized representative to prevent the same in accordance with the terms hereof within three days after notice from the director of the department of environmental services or his duly authorized representative to do so, he shall be guilty of a misdemeanor and subject to a fine not to exceed two thousand dollars, and each day's failure or refusal to remedy such conditions after the expiration of such time shall constitute a separate and distinct offense. (Ord. 16812 § 19 (part), 2007; Ord. 9431 § 6, 1988: prior code § 12-46)

Chapter 9.28

RAT CONTROL

Sections:

9.28.010	Definitions.
9.28.020	Rat stoppage requirements—Business building construction.
9.28.030	Rat stoppage requirements—Minimum.
9.28.040	Floors and racks for display of food products in the open.
9.28.050	Protection from climbing or roof rats.
9.28.060	Prohibitions.
9.28.070	Trapping and poisoning rats.
9.28.080	Inspections and notices to take remedial action.
9.28.090	Authority to close heavily infested buildings.

9.28.010 Definitions.

As used in this chapter the following terms shall mean:

A. "Business building" means any structure, whether public or private, regardless of the type of material used in its construction, located within the boundaries of the city, that is adapted to the occupancy for transaction of business, whether occupied or vacant, for the rendering of professional services, for the display, sale or storage of goods, wares or merchandise, or for the performance of work or labor, including hotels, roominghouses, beer taverns, office buildings, public buildings, churches, stores, markets, restaurants, grain elevators, abattoirs, warehouses, workshops and factories.

B. "Opening" means any opening in the foundation, sides or walls of any business building, including the roof, chimney, eaves, grills, windows, sidewalk grates and sidewalk elevators, through which a rat may enter.

C. "Person" includes owner, occupant, agent, receiver, individual, partnership or corporation, or any other person in custody of any business building as defined in subsection A of this section.

D. "Premises" includes all business buildings, outhouses, sheds, barns, garages, docks, grain elevators and abattoirs, whether public or private, and all other structures used in connection with the operation of any business buildings as defined in subsection A of this section.

E. "Rat harborage" means any condition found to exist under which rats may find shelter or protection, and shall include any defective construction which would permit the entrance of rats into any business building.

F. "Rat stoppage" means any feasible form of rat-proofing designed to prevent the ingress or egress of rats into or out of any business building. It is essentially the closing or protecting of all openings in the exterior walls and foundations or the grates in any sidewalk or business buildings, with rat-proofing materials installed in such a manner as to prevent rats from gaining entrance. (Prior code § 12-53)

9.28.020 Rat stoppage requirements—Business building construction.

No person shall construct within the city any business building unless such building is provided with rat stoppage in accordance with the regulations prescribed in this chapter. (Prior code § 12-54)

9.28.030 Rat stoppage requirements—Minimum.

The following regulations shall constitute minimum requirements in equipping a business building with rat stoppage:

A. The material shall be approved and the installation supervised by the director of the department of environmental services or his authorized representative.

B. Solid sheet metal, expanded metal and wire cloth used in the installation shall have a

rust-resisting protective coating of hot-dip zinc galvanizing or equal.

C. All foundation wall ventilator openings shall be covered for their entire height and width with perforated sheet metal plates of a thickness not less than fourteen gauge, or with expanded sheet metal of a thickness of not less than eighteen gauge, or with cast iron grills or grates, with any other material of sufficient strength and equal rat-resisting properties. The openings therein shall be small enough to prevent the ingress or egress of rats, and in no instance shall be larger than one-half of an inch.

D. All foundation, exterior wall and roof openings (excluding doors, windows and those openings used for the purpose of ventilation and light) such as those openings around pipes, electric cables, conduits, openings due to deterioration or damage, broken masonry or concrete or other openings which may allow the ingress or egress of rats, shall be protected by closing such openings with cement mortar, concrete or masonry, or close-fitting sheet metal, or suitable size pipe flanges, or other material with equal rat-resisting properties, which shall be securely fastened in place.

E. All exposed edges of the lower eight inches or more, if necessary, of wooden doors and door jambs serving as front, rear or side entrances into business buildings from the ground, basement or cellar floors, and other doors accessible to rats, shall be protected against the gnawing of rats by covering such doors and jambs with solid sheet metal of not less than twenty-four gauge thickness. The same material shall be used on doorsills or thresholds, or such doorsills or thresholds may be constructed of cement, stone, steel or cast iron.

Doors, door jambs and sills of coal chutes and hatchways that are constructed of wood shall be covered with solid sheet metal of twenty-four guage or heavier, or they may be replaced with metal chutes of twenty-four gauge or heavier, installed in such manner as will prevent the ingress or egress of rats.

All buildings with side and rear door entrances shall be provided with fly screen and hardware cloth doors. These doors shall be provided with suitable automatic self-closing devices.

All doors on which metal flashing has been applied shall be properly hinged to provide for free swinging. When closed, doors shall fit snugly so that the maximum clearance between any door, door jambs and sill shall not be greater than three-eighths of an inch.

Door jambs and sills constructed of metal, concrete, masonry, stone or cement mortar, or cast iron and steel, when fitting closely to exclude rats, are not required to comply with this provision of this chapter.

F. All windows and other openings for the purpose of light or ventilation, located within thirty inches above the existing ground or roof level immediately below such openings, shall be covered for their entire height and width, including frames, with wire cloth of nineteen gauge or heavier, having a mesh of not larger than one-half of an inch.

All windows and other openings for the purpose of light or ventilation in the exterior walls, which may be accessible to rats by way of exposed pipes, wires, conduits and other appurtenances, shall be covered with guards of wire cloth of nineteen gauge or heavier, having a mesh of not larger than one-half of an inch, in metal frames of twenty-four-inch galvanzied iron (called Sims frames), or, in lieu of wire cloth covering, such pipes, wires, conduits and other appurtenances shall be blocked from rat usage by installing sheet metal guards of twenty-four guage or heavier. Such guards, when used on horizontal pipes, wires, conduits or other appurtenances, shall be placed in a vertical position and shall be snugly fitted araound the pipe, wire, conduit or other appurtenance. Such guard shall measure not less than twelve inches beyond and on all sides of the pipe, wire, conduit or other appurtenance where the intervening space between the wall and pipe permits, and shall extend thirty inches in an upward direction and

twelve inches in a downward direction, and shall be securely fastened to the pipe, wire, conduit or other appurtenance, and also to the adjcent wall wherever practicable, so that the guard will remain in a vertical position at all times.

Such guards, when used on vertical pipes, wires, conduits or other appurtenances, shall be fitted snugly around the pipe, wire, conduit or other appurtenances, shall be placed in a horizontal position (right angle to pipe) and shall extend horizontally from the pipe, wire, conduit or other appurtenance for a minimum distance of twelve inches beyond and on all sides of the pipe, wire, conduit or other appurtenance and also to the adjacent wall wherever practicable, in such manner that the guard will remain in a horizontal position at all times.

G. Light wells with windows in exterior walls that are located below the outside ground level shall be protected from the ingress and egress of rats by one of the following methods:

1. Installing over light wells cast iron or steel grills or steel gratings or other material of equal strength and rat-resisting properties, with openings in grills or gratings not to exceed one-half of an inch in shortest dimension.

2. Installing securely to and completely covering existing metal grills that are broken or have openings larger than one-half of an inch in shortest dimension, or otherwise defective, with expanded metal of eighteen gauge or heavier, having openings not greater than one-half inch in shortest dimension, or with sixteen gauge or heavier wire cloth with one-half of an inch mesh.

At the option of the person in custody of the business building, the opening in the wall of the building below the grate may be entirely closed with brick or concrete or partially closed and the remaining open space covered with nineteen guage or heavier wire cloth with mesh not to exceed one-half of an inch.

H. Business buildings constructed on piers having wooden floors with sills less than twelve inches above the surface of the ground shall have the intervening space between floor sill and ground protected against the ingress or egress of rats by installing a solid masonry or concrete wall not less than four inches thick, around the entire perimeter of the business building, extending the curtain wall to a depth of not less than eighteen inches below the surface of the ground level, with a twelve-inch shelf extending outward from the wall, and fastening securely to the exterior wall of the business building in such manner as will prevent rats from entering the building, except in instances in which the soil will allow rats to burrow more than twelve inches into the ground, in which instance the depth of the curtain wall shall not be less than thirty-six inches.

In lieu of the installation of curtain walls all ground floors of wood construction may be replaced with concrete of not less than three inches in thickness, with the exterior walls protected for a height of twenty-four inches above the concrete floor with masonry concrete or solid sheet metal of twenty-four gauge or heavier. Such exterior wall protection shall be securely tied into the concrete floor at all points.

Business buildings constructed on piers having the lower surface of wooden floor sills more than twelve inches above the ground level shall have the intervening spaces between floor sill and ground protected against the ingress or egress of rats by installing curtain walls in accordance with the preceding paragraph, or by protecting such business building against the ingress or egress of rats by installing solid sheet metal coverage of twenty-four gauge or heavier snugly around each pipe, cable, wire, conduit or other utility service passing through wooden ground floor. The diameter of such metal coverage shall not be less than eight inches larger than diameter of pipe, cable, wire, conduit or other utility service, and shall be securely fastened to the wooden floor. All other openings in wooden ground floors through which rats may gain entrance into double walls or the interior of business buildings, such as openings that may exist in floors and double walls above sills, shall be closed with twenty-four gauge or heavier solid sheet metal or sixteen

gauge or heavier wire cloth of one-half-inch mesh, or with concrete or masonry. If the distance from the top of the floor sill to the under surface of a wooden floor is less than twelve inches, rat stoppage treatment as provided in other sections of this chapter shall be used. Wood frame constructed business buildings having concrete or masonry foundation wall shall have ventilators in foundation walls protected as herein provided in subsection D of this section. All miscellaneous wall openings, doors and windows shall be protected in accordance with this chapter. (Ord. 16812 § 20 (part), 2007; prior code § 12-56)

9.28.040 Floors and racks for display of food products in the open.

Curb or farmers' markets in which fruit or vegetables or any other food products are exposed and offered for sale on racks, stands, platforms and in vehicles outside of business buildings shall have floors paved with concrete, asphalt, or other similar material for the entire surface area of the market. Display racks, stands or platforms on which fruits or vegetables or any other food products are displayed or offered for sale shall be of sufficient height so that all such fruit, vegetables or other food products shall be kept at a distance of not less than twenty-four inches above the floor pavement, and shall be so constructed that rats cannot harbor therein or thereunder. (Prior code § 12-57)

9.28.050 Protection from climbing or roof rats.

In order to protect business buildings from what is commonly called the climbing or roof rat, the following provisions shall apply:

A. No person in custody of a business building shall permit any fishing poles, ladders or other objects to lean against the side or wall of such business building in such manner that rats could climb on and reach any part of the structure or roof.

B. The persons in custody of business buildings shall also protect elevator shafts, fire escapes and guy wires in such manner that rats will not be able to gain ingress or egress into or out of such business building.

C. It shall be the duty of any person in custody of a business building to trim the branches of all trees extending over, against or near any business building, and same shall be cut and trimmed and kept cut and trimmed so that no part of any branch or any part of such tree shall be closer than ten feet to any business building, and the tops of all trees shall be cut back ten feet from the line extending perpendicularly from any exterior wall of a business building. (Prior code § 12-59)

9.28.060 Prohibitions.

A. No person shall permit any premises, improved or unimproved on which evidence of rat infestation is found, or any lots or alleys adjacent to such property, to accumulate lumber, boxes, barrels, bricks, stones or any other character of materials that may be used as a harborage for rats unless same shall be placed on open racks and elevated not less than eighteen inches above the ground, with a clear intervening space underneath.

B. It is unlawful for any person to use or maintain any business building or premises in such manner that a rat harborage is brought into existence or maintained.

C. It is unlawful for any person to dump or place on any land or on any water or waterways within the city any dead animals, butchers' offal, seafood or any waste vegetables, animal matter or any food products whatsoever.

D. No garbage, rubbish, waste or manure shall be placed, left, dumped or permitted to accumulate or remain in any building or premises in the city so that same shall or may afford food for or harborage or breeding place for rats. Rat burrows and other exterior harborage shall be treated as directed by the director of the department of environmental services, in accordance with accepted sanitation practice. (Ord. 16812 § 20 (part), 2007; prior code § 12-60)

9.28.070 Trapping and poisoning rats.

A. For purposes of eliminating all rats that may remain in or gain access to any business building af-

ter rat stoppage shall have been carried into effect, all storerooms, warehouses or other business buildings shall be provided with rat traps, which shall be properly set and maintained in good working order at all times by persons in custody of such business buildings, and shall be inspected daily; any rats caught therein shall be killed, removed daily and disposed of in a manner acceptable to the director of the department of environmental services.

B. Rats shall also be destroyed by poisoning or other such means, in addition to trapping as may be deemed necessary by the director of the department of environmental services or his authorized representative. (Ord. 16812 § 20 (part), 2007; prior code § 12-58)

9.28.080 Inspections and notices to take remedial action.

The director of the department of environmental services, or his representative, is authorized and directed to inspect at frequent intervals, and to maintain strict surveillance over, all existing business buildings for the purpose of determining any rat infestation, and in the event any rat infested business building is found to exist, to notify immediately, in writing, the person in custody of such building to protect such building by rat stoppage as herein provided, regardless of the need of the building for remodeling or repairs, and to take such measures as will make the building free from rats. The written notice shall specify the time, and in no event less than thirty days, for completion of such work and improvements.

Failure to comply with such written notices within the time specified shall constitute a violation of this chapter.

Whenever necessary to make an inspection to enforce any of the provisions of this chapter, the director of the department of environmental services or his authorized representative may enter any building or premises at all reasonable times to inspect the same or to perform any duty imposed upon the director of the department of environmental services by this chapter; provided, that if such building or premises is occupied, he shall first present proper credentials and request entry; and if such building or premises is unoccupied, he shall first make a reasonable effort to locate the owner or other person having charge or control of the building or premises and request entry. If such entry is refused, the director of the department of environmental services or his authorized representative shall have recourse to every remedy provided by law to secure entry.

When the director of the department of environmental services or his authorized representative shall have first obtained a proper inspection warrant or other remedy provided by law to secure entry, no owner or occupant or any other persons having charge, care or control of any building or premises shall fail or neglect, after proper request is made as herein provided, to promptly permit entry therein by the director of the department of environmental services or his authorized representative for the purpose of inspection and examination pursuant to this chapter. (Ord. 16812 § 20 (part), 2007; prior code § 12-55)

9.28.090 Authority to close heavily infested buildings.

When the director of the department of environmental services shall find any building, structure or premises so heavily infested with rats as to constitute a present menace to public health, he shall have authority to close the same to any occupancy or use until rats have been eradicated. (Ord. 16812 § 20 (part), 2007; prior code § 12-61)

Chapter 9.32

RESERVED*

*Editor's note—Ord. No. 17842, § 1, passed July 31, 2012, effective January 1, 2013, repealed § 9.32, which pertained to tattooing and body piercing and derived from Ord. 16812 § 1 (part), 2007; Ord. 15715 § 1 (part), 2004; Ord. 16812 §§ 2, 21 (part), 22—25, 2007; Ord. 16980 §§ 3, 4, 2008; Ord. No. 17392, §§ 4, 5, 8-24-2010, eff. 9-1-2010. The users' attention is directed to Ch. 5.10 of this Code for similar provisions.

Chapter 9.36

AIR QUALITY*

Sections:

9.36.010 Definitions.
9.36.020 Applicability.
9.36.030 Air quality standards.
9.36.040 Role of the department.
9.36.050 Sources of authority.
9.36.060 Outdoor burning.
9.36.070 Solid fuel heating devices.
9.36.080 Odors.
9.36.090 Inspections and enforcement.
9.36.100 Violations.
9.36.110 Severability.
9.36.120 Conflicting Code previsions repealed.
9.36.130 Savings of pending violations.

9.36.010 Definitions.

The following definitions apply to this Chapter 9.36 of the El Paso City Code:

A. "Air contaminant" means particulate matter, radioactive material, dust, fumes, gas, mist, smoke, vapor, or odor, including any combination of those items, produced by processes other than natural.

B. "Air pollution" means the presence in the atmosphere of one or more air contaminants or combination of air contaminants in such concentration and of such duration that are or may tend to be injurious to or to adversely affect human health or welfare, animal life, vegetation or property, or interfere with the normal use or enjoyment of animal life, vegetation, or property.

C. "Department" means the department of environmental services.

D. "Director" means the director of the department of environmental services.

E. "Premises" means any public or private property including any building and structure present at the property, other than property designed for and used exclusively as a private residence, housing not more than three families;

F. "Private residence" means a premises that is not used in whole or in part for any commercial operation.

G. "TCEQ" means the Texas Commission on Environmental Quality.
(Ord. No. 19043, § 2, 3-17-2020)

9.36.020 Applicability.

This chapter shall apply only to air pollution and odors that are observed and documented from outdoors and are not completely contained within a fully enclosed building or structure.
(Ord. No. 19043, § 3, 3-17-2020)

9.36.030 Air quality standards.

The city hereby adopts by reference the following state air pollution control laws, rules and regulations and as they may be amended from time to time, including the tables, graphs, figures, appendices, and other matter promulgated as part of the state commission's rules or orders, all of which are incorporated by reference as though written fully word for word in this chapter.

A. 30 Tex. Admin. Code § 101, General Air Quality Rules;

B. 30 Tex. Admin. Code § 106, Permits by Rule;

C. 30 Tex. Admin. Code § 111, Control of Air Pollution from Visible Emissions and Particulate Matter;

D. 30 Tex. Admin. Code § 112, Control of Air Pollution from Sulfur Compounds;

E. 30 Tex. Admin. Code § 113, Standards of Performance for Hazardous Air Pollutants and for Designated Facilities and Pollutants;

F. 30 Tex. Admin. Code §114, Control of Air Pollution from Motor Vehicles;

***Editor's note**—Ord. No. 19043, §§ 1—14, adopted March 17, 2020, repealed the former Ch. 9.36, §§ 9.36.010—9.36.100, and enacted a new Ch. 9.36 as set out herein. The former Ch. 9.36 pertained to air pollution and derived from prior code §§ 12-89—12-92, 12-94—12-97; Ord. 16812 §§ 2(part), 27(part), 28, 29, adopted in 2007; and Ord. No. 17267, §§ 2, 3, adopted Jan. 12, 2010.

G. 30 Tex. Admin. Code § 115, Control of Air Pollution for Volatile Organic Compounds;

H. 30 Tex. Admin. Code § 116, Control of Air Pollution by Permits for New Construction or Modification;

I. 30 Tex. Admin. Code § 117, Control of Air Pollution from Nitrogen Compounds;

J. 30 Tex. Admin. Code § 118, Control of Air Pollution Episodes.

(Ord. No. 19043, § 4, 3-17-2020)

9.36.040 Role of the department.

The role of the department shall be as follows:

A. Investigate complaints of violations of this chapter, the Texas Clean Air Act, pursuant to Chapter 382 of the Texas Health and Safety Code, as amended, and other applicable state and federal air pollution laws, rules and regulations, make inspections of sources of air pollution and ambient air conditions, and to maintain a record of the investigations, complaints, inspections and observations;

B. Encourage voluntary cooperation by persons and by effected groups in the preservation and regulation of the purity of the outdoor atmosphere;

C. Collect and disseminate information to the general public on air pollution;

D. Work with planning and zoning agencies for the purpose of coordinating activities under the provisions of this chapter with planning and zoning activities, and foster the best possible management of the air resources of the city;

E. Cooperate and work with the federal, state and local government agencies concerned with air pollution problems.

(Ord. No. 19043, § 5, 3-17-2020)

9.36.050 Sources of authority.

The department, by and through its director and designees, shall implement and enforce this chapter as determined necessary pursuant to the following:

A. Applicable state statute(s), rules and regulations;

B. An executed contract between the city and the TCEQ;

C. A memorandum of understanding with a government entity related to activities under this chapter; or

D. An executed interlocal agreement between the city and a local government entity.

(Ord. No. 19043, § 6, 3-17-2020)

9.36.060 Outdoor burning.

A. General Prohibition Against Outdoor Burning. No person may cause, suffer, allow, or permit any outdoor burning within city limits, except as provided by this subchapter or applicable state law.

B. Exceptions. The following exception to disposal fires applies to any current prohibition against outdoor burning at the city's Rio Bosque Park:

1. Notwithstanding any current prohibitions against outdoor burning within the limits of the city, there shall be an exception for a disposal fire that consists of the on-site burning of trees, brush, grass, leaves, branch trimmings, or other plant growth at Rio Bosque Park located at 10719 Socorro Road, El Paso, Texas by the city or any other person authorized by the city and when the material is generated only from that property even while said outdoor burn is in a designated nonattainment area or that contains any part of the city that extends into a designated nonattainment area, if the plant growth being disposed was generated as a result of right-of-way maintenance, land clearing operations, and maintenance along water canals when no practical alternative to burning exists. Such burning is subject to the following requirements:

a. Prior to prescribed or controlled burning, the applicant for an open burning permit shall submit to the fire official an application for an open burning permit, a minimum often ten days in advance of the proposed burn, and that application shall include the date(s) burning will occur, specific location, the time burning will commence, and the estimated time burning will terminate.

b. The fire official shall in turn submit the application to the department. Upon review of the application, the director shall approve said application if the following criteria are not met or shall deny said application if the following criteria are met, and within five working days of receipt of the application shall notify the fire official of the director's approval or denial of the application: During periods when the outdoor burn ban is in effect for El Paso County, as established by the Texas Interagency Coordination Center;

i. If the request proposes anything other than the on-site burning of trees, brush, grass, leaves, branch trimmings, or other plant growth when the material is generated only from that property and when there is no other practical alternative means of disposal; or

ii. If there is a structure with sensitive receptors on adjacent property less than three hundred feet from the area of the open burning, unless the disposal fire requestor provides written approval from the property owner where said structure is located.

c. After receipt of a denial from the director, the fire official shall notify the applicant of said denial. After receipt of an approval from the director, the fire official shall issue the open burning permit for the prescribed or controlled burn subject to the following criteria being met:

i. Current and adopted fire code requirements;

ii. An on-site pre-burn inspection conducted by the El Paso Fire Department-Fire Prevention Division when required by the fire official;

iii. Receipt of fees for the open burning permit; and

iv. Receipt of fees for fire watch/standby personnel when such personnel are required by the fire official in the amount identified in the adopted budget resolution for the current fiscal year, or other appropriately adopted resolution by city council.

d. Pursuant to this subsection, a "practical alternative" is defined as an economically, technologically, ecologically, and logistically viable option, such as recycling, composting, mechanical chipping or mulching, logging, landfills or air curtain incineration (trench burning).

e. Burning must be outside the corporate limits of the city except as described in this subchapter which permits burning consistent with the Texas Clean Air Act, subchapter E, Authority of Local Governments, as amended.

f. Burning shall commence and be conducted only when wind direction and other meteorological conditions are such that smoke and other pollutants will not cause adverse effects to any public road, landing strip, navigable water, or off-site structure containing sensitive receptor(s), unless the city obtains prior written approval from the property owner where said receptor is located.

g. If at any time the burning causes or may tend to cause smoke to blow onto or across a road or highway, it is the responsibility of the person initiating the burn to post flag-persons on effected roads.

h. Burning must be conducted downwind of or at least three hundred feet (ninety meters) from any structure containing sensitive receptors located on adjacent properties unless the city obtains prior written approval from the property owner where said structure is located.

i. Burning shall be conducted in compliance with the following meteorological and timing considerations:

i. The initiation of burning shall commence no earlier than one hour after sunrise. Burning shall be completed on the same day not later than one hour before sunset, and shall be attended by a responsible party at all times during the active burn phase when the fire is progressing. In cases where residual fires and/or smoldering objects continue to emit smoke after this time, such areas shall be extinguished if the smoke from these areas has the potential to create a nuisance or traffic hazard condition. In no case shall the extent of the burn area be allowed to increase after this time.

ii. Burning shall not be commenced when surface wind speed is predicated to be less than six

miles per hour (mph) (five knots) or greater than twenty-three mph (twenty knots) during the burn period.

iii. Burning shall not be conducted during periods of actual or predicated persistent low-level atmospheric temperature inversions.

j. Electrical insulation, treated lumber, plastics, non-wood construction/demolition materials, heavy oils, asphaltic materials, potentially explosive materials, chemical wastes, and items containing natural or synthetic rubber must not be burned.

2. The fire official is authorized to order the extinguishment by the permit holder or the fire department of open burning, which creates or adds to a hazardous or objectionable situation.

3. Prescribed or controlled burning without an approved open burning permit shall not be allowed and the applicable local amendment to the International Fire Code (Chapter 9.52.030.15 of the El Paso City Code) relating to payment for a permit shall be enforced.
(Ord. No. 19043, § 7, 3-17-2020)

9.36.070 Solid fuel heating devices.

A. The city hereby adopts by reference 30 TAC § 111.111(c), in its current form and as may be amended, which is incorporated by reference as though written fully word for word in this chapter.

B. Notice of no-burn periods shall be sufficient if published in a newspaper of general circulation within the city, or if presented orally at least three times during a six-hour period by at least two radio or television stations operating within the city, or if presented to the general public in the form of a message posted on the city's website or a recorded telephone message, the telephone number for which is published on the city's website or newspaper of general circulation within the city.
(Ord. No. 19043, § 8, 3-17-2020)

9.36.080 Odors.

A. Declared Nuisance.

1. The discharge of one or more air contaminants from any source whatsoever in such concentration and of such duration as are or may tend to be injurious to or to adversely affect human health or welfare, animal life, vegetation or property, or as to interfere with the normal use and enjoyment of animal life, vegetation, or property is declared to be a nuisance. The following shall be considered nuisances for the purpose of this chapter, but such enumeration shall not be deemed to be exclusive:

a. An offensive smell, smoke or odor generated by the burning of any hair, leather, rags or substances.

b. A foul or offensive odor generated by the accumulation of animal feces and putrid materials.

2. The police department, any employee of the department or the city's department of animal services, an employee in the code enforcement division, or a commissioned peace officer is authorized to abate such nuisances under the term and conditions hereinafter provided.

B. Abatement. In addition to the penalties set forth in Section 9.36.090(D) of this chapter, upon complaint or upon its own initiative, the police department, any employee of the department or the city's department of animal services, an employee in the code enforcement division, or a commissioned peace officer may remove, abate or destroy the nuisance at the expense of the city. Alternatively, the director may request that the city attorney file suit to obtain such orders or processes as are necessary to abate the nuisance.

C. Enforcement of this Section. In addition to abatement, the police department, employees of the department or the city's department of animal services, employees in the code enforcement division and commissioned peace officers are authorized to enforce the provisions of this section and shall have the power to issue warnings and citations to any persons violating the provisions of this section. These city officials designated above are authorized to conduct inspections of any property upon complaint or its own initiative, and to investigate instances of non-compliance with this section to enforce these provisions. If the occupants in possession of any property

refuses to allow the city officials permission to enter the property, at any reasonable time, those officials shall have recourse to every remedy provided by law to secure entry including obtaining the proper judicial warrants.
(Ord. No. 19043, § 9, 3-17-2020)

9.36.090 Inspections and enforcement.

A. Whenever the director or authorized representative has reasonable cause to believe that there exists upon any premises any condition or code violation of this chapter that makes the level of air contaminants unsafe, dangerous or hazardous, the director or authorized representative may enter such premises at all reasonable times to inspect the same or to perform any duty imposed upon the director by this chapter.

1. If the premises subject to inspection is occupied, the director or authorized representative shall first present proper credentials and request entry.

2. If the premises subject to inspection is unoccupied, the director or authorized representative shall first make a reasonable effort to locate the owner or other persons having charge or control of the premises and request entry.

3. If entry subject to this section is refused, the director or authorized representative shall have recourse to every remedy provided by law to secure entry.

B. Whenever the director or authorized representative has first obtained a proper inspection warrant or availed himself of any other remedy provided by law to secure entry, no owner or occupant or any other persons having charge, care or control of any premises shall fail or neglect, after proper request is made as herein provided, to promptly permit entry therein for the purpose of inspection and examination pursuant to this chapter.
(Ord. No. 19043, § 10, 3-17-2020)

9.36.100 Violations.

A. Reporting to the TCEQ. The director, or authorized representative, may develop and refer any violation of this chapter to the TCEQ for review and enforcement.

B. Civil Penalty. Subject to Section 7.3511 of the Texas Water Code, as amended, and following the adoption of a city resolution, the city may by its own attorney institute a civil suit for injunctive relief or civil penalty, against persons violating the provisions of Chapter 16, 26, or 28 of the Texas Water Code, or Chapters 361 366, 371, 372, or 382 of the Texas Health and Safety Code, as amended. Any civil penalty sought by the city's own attorney pursuant to Chapter 7 of the Texas Water Code shall be consistent with the maximum penalties of each violation as set forth in Section 7.102 of the Texas Water Code, as amended. Each day of a continuing violation shall constitute a separate violation.

1. Any civil penalty recovered in a suit brought according to this section shall be divided with the state in accordance with Section 7.107 of the Texas Water Code, as amended.

2. In the event the state prevails in a suit under this section, it may recover reasonable attorney's fees, court costs, and reasonable investigative costs incurred in relation to the proceeding.

C. Criminal Enforcement.

1. A peace officer may refer an alleged criminal violation by a person holding a permit issued by the TCEQ, of the Texas Health and Safety Code, or any other statute, rule, order, permit or other decision of the Texas Natural Resource Conversation Commission to a prosecuting attorney subject to Section 7.203 of the Texas Water Code, as amended.

2. In accordance with Section 7.203 of the Texas Water, as amended, the city's prosecuting attorney may bring an action for criminal prosecution of a misdemeanor punishable by a fine not to exceed two thousand dollars.

3. Each day's violation shall constitute a separate offense.

4. Nothing in this section prohibits a peace officer from issuing a citation or making an arrest.

5. Any fine, penalty, or settlement recovered through a prosecution subject to this section and brought in the name and by the authority of the

State of Texas, shall be apportioned seventy percent to the State of Texas and thirty percent to the city.

D. Other Enforcement Action. Except as otherwise provided by Texas law, any person violating any provision of Section 9.36.080 of this Code, shall be deemed guilty of a misdemeanor and upon conviction, shall be punished by a fine not to exceed five hundred dollars. Each day that a provision of this chapter is violated shall constitute a separate offense.

(Ord. No. 19043, § 11, 3-17-2020)

9.36.110 Severability.

The sections, paragraphs, sentences, clauses, and phrases of this Code are severable, and if any phrase, clause, sentence, or paragraph or section of this Code shall be deemed preempted or declared unconstitutional by the valid judgment or decree of any court of competent jurisdiction, such invalidity shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections of this Code.

(Ord. No. 19043, § 12, 3-17-2020)

9.36.120 Conflicting Code previsions repealed.

Any provision(s) in the El Paso City Code specifically in conflict with any provision in this chapter is deemed inoperative and repealed.

(Ord. No. 19043, § 13, 3-17-2020)

9.36.130 Savings of pending violations.

Nothing in this chapter shall be construed to affect any suit or proceeding pending in any court, or any rights acquired, or liability incurred, or any cause or causes of actions acquired or existing, under any act or prior ordinance; nor shall any legal right or remedy of any character be lost, impaired, or affected by this chapter.

(Ord. No. 19043, § 14, 3-17-2020)

Chapter 9.38

RESERVED*

*__Editor's note__—Ord. No. 19044, § 1, adopted March 17, 2020, repealed the former Ch. 9.38, §§ 9.38.010—9.38.060, and enacted a new Ch. 9.38 as set out herein. The former Ch. 9.38 pertained to woodburning and derived from Ord. 10335(part), adopted in 1990; and Ord. 16812 §§ 30(part), 31, adopted in 2007.

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Chapter 9.39

ALTERNATIVE FUELS

Sections:

9.39.010 Definitions.

9.39.020 Oxygenated fuels.

9.39.030 Labeling and notice to public.

9.39.040 Violation—Penalty.

9.39.010 Definitions.

A. "Ethanol" means a colorless volatile flammable alcohol with the molecular composition of C_2H_{60}.

B. "Facility" means a place or places of business which sells or supplies for wholesale or retail purposes gasoline motor fuel, including fuel transportation businesses.

C. "Gasoline motor fuels" means, for purposes of this chapter, any flammable liquid used primarily as a fuel for the propulsion of motor vehicles, but does not include diesel engine fuel, kerosene, liquefied petroleum gas, natural gas and products especially prepared and sold for use in the turbo-prop or jet type engines.

D. "Methanol" means a light volatile flammable poisonous liquid alcohol CH_3OH formed by the destructive distillation of wood or manufactured from natural gas or coal, and used in combination with heavier cosolvent alcohols as an octane enhancer for addition to gas.

E. "MTBE" means methyl-tertiary-butyl-ether.

F. "Motor vehicle" means any vehicle propelled by a spark ignited internal combustion engine which is designed primarily for travel on public highways and which is generally and commonly used to transport persons and property over public highways.

G. "Oxygen content by weight" means a measurement of the percentage of oxygen in an oxygenated fuel.

H. "Oxygenate" means any oxygen-containing ashless, organic compound which may be used as a fuel or as a gasoline blending compound and which was approved as a blending agent under the provisions of a waiver issued by the United States Environmental Protection Agency.

I. "Oxygenated fuel" means a motor vehicle fuel blend, whether leaded or unleaded, consisting primarily of gasoline and a substantial amount of one or more oxygenates, generally an alcohol or ether. (Ord. 10524 (part), 1991)

9.39.020 Oxygenated fuels.

A. From October 1, 1991 through March 31, 1992, no person shall supply or sell any gasoline motor fuel intended as a final product for fueling of motor vehicles within the city, or sold at retail, or sold to a private or government fleet for consumption, or introduced into a motor vehicle in the city, by any person unless the total fuel sold by any person has a minimum average content of 2.0 percent oxygen by weight averaged over the total volume of each grade of gasoline sold by the person. From October 1, 1992 through March 31 in all years thereafter, the minimum average content shall be 2.7 percent by weight.

B. No gasoline motor fuel blended with methanol and intended as a final product for fueling of motor vehicles shall be sold at retail within the city. Methanol indigenous to other oxygenates will be allowed. (Ord. 10524 (part), 1991)

9.39.030 Labeling and notice to public.

All oxygenated motor fuel sold within the city shall be labeled at each dispensing pump identifying the motor fuel as oxygenated. (Ord. 10524 (part), 1991)

9.39.040 Violation—Penalty.

Any person violating any provision of this chapter shall be deemed guilty of a misdemeanor punishable by a fine not to exceed two thousand dollars. Each day's violation shall constitute a separate offense. In addition to any penalties provided for herein, this chapter shall also be enforceable by injunction. (Ord. 10524 (part), 1991)

Chapter 9.40

NOISE*

Sections:

9.40.010 Definitions.

9.40.020 Applicability.

9.40.030 Sound level violations.

9.40.040 Vibration.

9.40.050 Sound level measurement.

9.40.060 Identification of violator.

9.40.070 Penalties.

9.40.080 Enforcement.

9.40.090—9.40.140 Reserved.

9.40.010 Definitions.

The following words shall have the following meanings:

1. "Amplified sound" means sound including but not limited to music, singing or spoken words that are conveyed through the utilization of sound amplification equipment.

2. "A-weighted sound system" means standards related to the measurement of sound pressure that accounts for the relative loudness perceived by the human ear.

3. "dB(A)" means a unit of the measurement of sound in decibels, as measured on a sound level meter using the A-weighted system.

4. "Decibel (dB)" means a unit of measurement for sound pressure level at a specified location.

5. "Motor vehicle" means any vehicle which is propelled or drawn on land by a motor, such as, but not limited to, passenger cars, trucks, truck-trailers, semitrailers, campers, watercraft, go-carts, dune buggies or racing vehicles, but not including motorcycles.

6. "Motorcycles" means an unenclosed motor vehicle having a saddle for the use of the operator and two or three wheels in contact with the ground, including, but not limited to, motor scooters and minibikes.

7. "Muffler" means a device for abating the sound of escaping gases of an internal combustion engine.

8. "Noise nuisance" means any loud, irritating, vexing or disturbing sound originating from a nearby property under separate ownership or occupancy which causes injury, discomfort, or distress of a person of reasonable sensibilities, or any sound that exceeds the maximum permitted sound levels specified in this chapter.

9. "Nonresidential property" means any real property that is not included in the definition of residential property as defined in this section. Without limitation, the term includes properties that have been developed other than as residential properties, properties that are undeveloped, and properties that are devoted to public purposes, such as public streets and parks.

10. "Park" means any public park within the limits of the City of El Paso, including parks owned by the City of El Paso, County of El Paso, or State of Texas.

11. "Permit official" has the same meaning as defined in Section 1.04.030.1 of the El Paso City Code.

12. "Person" means an individual, firm, association, partnership, joint venture, corporation or any entity, public or private in nature.

13. "Public right-of-way" means any street, alley, sidewalk or other place to which the public has legal access.

14. "Reasonable sensibilities" means the ordinary, typical and/or expected sensory perception of noise when taking into account the source, volume, time of day and duration of the noise.

15. "Residential property" means a parcel of real property which is developed and used in part or in whole for human habitation, other than transient uses such as hotels, motels, and hospitals.

16. "Sound amplification equipment" means a loud speaker, public address system, amplifica-

*__Editor's note__—As per Section 15 of Ord. No. 18908, this ordinance shall take effect one hundred eighty days after the adoption date of Feb. 26, 2019.

tion system for voice and musical instruments, or other sound producing device that relies on electrical power to generate and/or amplify sound.

17. "Sound level" means the weighted sound pressure level obtained by the use of a sound level meter and frequency weighting network as specified in American National Standards Institute specifications for sound level meters. If the frequency weighting employed is not indicated, the A-weighting shall apply.

18. "Sound level meter" means an instrument which is used to measure sound pressure levels, issued by the city and meeting the standards prescribed by the American National Standards Institute.

19. "Stadium event" means an event occurring at an outdoor stadium or amphitheater that is not related to a public or private school activity, including but not limited to concerts, professional sports competitions, and entertainment events.

20. "Local ambient reading" means the lowest sound level repeating itself during a one-minute period as measured with a sound level meter, using slow response and "C" weighting. The minimum sound level shall be determined with the music or entertainment noise source at issue silent, and in the same location as the measurement of the noise level of the source or sources at issue.

21. "dB(C)" means a unit of measurement of sound in decibels, as measured on a sound level meter using the C-weighted system.

22. "Food service establishment" means any place where food is prepared and intended for individual portion service, and includes the site at which individual portions are provided. The term includes any such place regardless of whether consumption is on or off the premises and regardless of whether there is a charge for the food. The term does not include private homes where food is prepared or served for individual family consumption.

23. "Restaurant" means a business that:

a. Operates its own permanent food service facility with commercial cooking equipment on its premises; and

b. Prepares and offers to sell multiple entrees for consumption on or off the premises. (Ord. 16812 §§ 32 (part), 33, 34, 2007; prior code § 12-106) (Ord. No. 17392, § 7, 8-24-2010, eff. 9-1-2010; Ord. No. 18908, § 1, 2-26-2019; Ord. No. 019696, § 1, 12-17-2024; Ord. No. 019782, § 1, 8-19-2025)

9.40.020 Applicability.

A. This chapter shall not apply to the following:

1. The emission of sound for the purpose of alerting persons to an emergency;

2. Sound produced by emergency vehicles or utility vehicles and utility crews undertaking emergency work; or

3. Sound produced by a vehicle motor with a properly installed muffler while the vehicle is moving on a public right-of-way, public waterway, airport runway, or railway; or

4. Sound produced by any governmental body in the performance of a governmental function, nor to sound from activities from a government-sponsored event on governmentally owned or leased property or property under the control of a public utility;

5. Sound generated at a scheduled stadium event or an event at a venue with more than two thousand five hundred seating capacity;

6. Sound generated by any activity in which the regulation thereof has been preempted by state or federal law, including, but not limited to, sound produced by aircraft in flight and including all activities taking place at the El Paso International Airport; or

7. Sound generated by the normal maintenance of property, such as lawn mowing, provided the activities take place from 7:00 a.m. to 10:00 p.m.; or

8. Sound produced by the operation of any air-conditioning unit, heat pump, HVAC system, or swimming pool machinery which does not produce a sound exceeding seventy dBA on residential property or [seventy-five] dBA on nonresiden-

tial property, when measured at the nearest exterior wall of a residential or commercial building under separate ownership, or occupancy; or

9. Solid waste collection vehicles collecting waste at residential or nonresidential properties; or

10. Sound produced by bells or chimes from a religious institution, provided the sound is during 7:00 a.m. to 10:00 p.m., or at some other time in accordance with the tradition of a church specifically on a religious holiday; or

11. Sound produced by the operation of agricultural equipment, when such equipment is being used for the purpose of agricultural endeavors; or

12. Activities conducted on public parks, public playgrounds, and public or private school grounds, including, but not limited to, school athletic and school entertainment events conducted during the hours of 7:00 a.m. to 12:00 a.m.; or

13. Noncommercial public speaking and public assembly activities conducted during the hours of 7:00 a.m. to 10:00 p.m. on any public space or public right-of-way;

14. Establishments that accept delivery of supplies or other items, provided that if the delivery occurs between 10:00 p.m. and 5:00 a.m., then:

a. The delivery lasts for one hour or less;

b. The delivery is only for food, nonalcoholic beverages, food service supplies, or ice; and

c. The delivery sound level when measured from the residential property closest in proximity to the establishment does not exceed sixty-five dB(A), excluding traffic and other background noise that can be reasonably excluded.

B. Unless otherwise regulated by a current, valid permit issued by the permit official or specifically mentioned in Section 9.40.020A. specific noises that can constitute a noise nuisance include, but are not limited to the following:

1. Amplified sound at a park. Emitting amplified sound at a park, or on a public right-of-way adjacent to a park, is prohibited, except when authorized in accordance with a duly-issued governmental permit or posted park rule.

2. Animals. Owning, keeping, possessing, or harboring any animal or animals which, by frequent or habitual noisemaking, unreasonably disturbs or interferes with the sleep, peace, comfort, or repose of a person of reasonable sensibilities. The provisions of this subsection shall apply to all private facilities, including but not limited to any private or commercial animal shelters or kennels, which hold or treat animals.

3. Construction work. Operating or permitting to be operated any equipment used in commercial construction, repair, alteration, or demolition work on buildings, structures, streets, alleys, or appurtenances thereto, between the hours of 10:00 p.m. and 6:00 a.m. the following day, or in such a manner as to unreasonably disturb or interfere with the sleep, peace, comfort, and repose of a person of reasonable sensibilities.

4. Emergency signaling devices. The intentional sounding or permitting the sounding outdoors of any fire, burglar or private entity emergency management alarm, siren, whistle, or similar stationary emergency signaling device for more than five minutes during any consecutive sixty-minute period in such a manner as to unreasonably disturb or interfere with the sleep, peace, comfort, or repose of a person of reasonable sensibilities, except for those exemptions outlined in this chapter. Nothing herein shall be construed to authorize the operation of any emergency signaling device in violation of Chapter 5.13 (Security Alarm Systems) of this City Code.

5. Exterior loudspeakers. Operating or permitting to be operated any loudspeaker or sound-amplifying equipment in a fixed or movable position in or upon any street, alley, sidewalk, park, place, or public or private property for the purpose of commercial advertising, giving instructions, directions, talks, addresses, lectures, or transmitting music to any persons or assemblages of persons in such a manner as to unreasonably disturb or interfere with the sleep, peace, comfort, or repose of a person of reasonable sensibilities. This section does not apply to properties defined as restaurants.

6. Horns and signal devices. The continued or frequent sounding of any horn or other signal device on any automobile or vehicle, motorcycle, bus or other vehicle, except as a danger signal.

7. Mechanical devices. Operating or permitting to be operated, any mechanical, electrical, or electronic device outdoors on residential property in such a manner as to unreasonably disturb or interfere with the sleep, peace, comfort, or repose of a person of reasonable sensibilities.

8. Off-road motor vehicles. No person shall operate or permit to be operated any motorized vehicle off a public right-of-way in such a manner as to unreasonably disturb or interfere with the sleep, peace, comfort, or repose of a person of reasonable sensibilities.

9. Open air discharge. The discharge into the open air of the exhaust of any steam engine, stationary internal combustion engine, automobile, motorcycle, or other motor vehicle or boat, except through a properly installed muffler or other device which prevents loud or explosive noises therefrom.

10. Other prohibited sound levels. Any emanations of the human voice or sound from any other source, including but not limited to fireworks, motor vehicle horns or other noise nuisance-creating object, device or equipment, whether amplified or not, which unreasonably disturbs or interferes with the sleep, peace, comfort, or repose of a person of reasonable sensibilities.

11. Power equipment. Operating or permitting to be operated any power equipment on residential property outdoors between the hours of 10:00 p.m. and 7:00 a.m. the following day, or in such a manner as to unreasonably disturb or interfere with the sleep, peace, comfort, or repose of a person of reasonable sensibilities.

12. Radios, television sets, musical instruments, and similar devices. Operating or permitting to be operated in a fixed or movable position or mounted upon or within any vehicle in or upon any street, alley, sidewalk, park, place, or public or private property any radio receiving set, musical instrument, television, phonograph, drum, or other machine or device for the production or reproduction of sound or vibrations in such a manner as to unreasonably disturb or interfere with the sleep, peace, comfort, or repose of a person of reasonable sensibilities.

(Ord. No. 18908, § 2, 2-26-2019; Ord. No. 019696, § 2, 12-17-2024; Ord. No. 019782, § 2, 8-19-2025)

Editor's note—Ord. No. 18908, § 2, adopted Feb. 26, 2019, repealed the former § 9.40.020, and enacted a new § 9.40.020 as set out herein. The former § 9.40.020 pertained to decibel measurement criteria and derived from Prior code § 12-107.

9.40.030 Sound level violations.

A. For properties not defined as restaurants, it shall be unlawful for any person to conduct, permit, allow, or produce a sound that is discernable beyond the property lines of the property on which the sound is being produced that, when measured with a sound level meter using the standardized frequency weighting as specified by the American National Standards Institute, exceeds seventy dB(A) between the hours of 10:00 p.m. and 7:00 a.m. daily for the property on which the sound is produced.

B. For properties not defined as restaurants, it shall be unlawful for any person to conduct, permit, allow, or produce a sound that is discernable beyond the property lines of the property on which the sound is being produced that, when measured with a sound level meter using the standardized weight frequency weighting as specified by the American National Standards Institute, exceeds seventy-five dB(C) between the hours of 10:00 p.m. and 7:00 a.m. daily for the property on which the sound is produced.

C. For properties defined as restaurants, it shall be unlawful for any person to conduct, permit, allow, or produce a sound that is discernable beyond the property lines of the property on which the sound is being produced that, when measured with a sound level meter using the standardized frequency weighting as specified by the American National Standards Institute, exceeds seventy dB(A) or seventy-five dB(C) after 10:00 p.m. on Sunday through Thursday and 11:00 p.m. on Friday and Saturday, excluding traffic and other back-

ground noise that can be reasonably excluded. This section does not apply to a food service establishment on property that is located within three hundred feet of a residence that was occupied before any food service establishment was located on the property.

D. The dB(A) and dB(C) levels set forth in this section apply to a property where the sound is being produced. Any sound that when measured at the property where the sound is being produced exceeds the dB(A) and dB(C) levels set forth in this section is a violation of this chapter.

E. Procedure. Sound levels regulated in this chapter shall be measured in accordance with a city-adopted policy.

F. Reading location(s). The location or locations for measuring noise levels shall be at a location or locations as near as possible to a property line of the property producing the noise.

(Ord. No. 18908, § 3, 2-26-2019; Ord. No. 019696, § 3, 12-17-2024; Ord. No. 019782, § 3, 8-19-2025)

Editor's note—Ord. No. 18908, § 3, adopted Feb. 26, 2019, repealed the former § 9.40.030, and enacted a new § 9.40.030 as set out herein. The former § 9.40.030 pertained to designated noise zones and derived from Prior code § 12-109.

9.40.040 Vibration.

It shall be unlawful for any person to create, maintain or cause any ground or airborne vibration which is perceptible without instruments by a person at any point on any affected property, in such a manner as to unreasonably disturb or interfere with the sleep, peace, comfort and repose of a person of reasonable sensibilities, unless such activity is otherwise regulated under other applicable law.

(Ord. No. 18908, § 4, 2-26-2019; Ord. No. 019696, § 4, 12-17-2024)

Editor's note—Ord. No. 18908, § 4, adopted Feb. 26, 2019, repealed the former § 9.40.040, and enacted a new § 9.40.040 as set out herein. The former § 9.40.040 pertained to exterior noise standards and derived from Prior code § 12-110.

9.40.050 Sound level measurement.

Whenever portions of this chapter prohibit a sound level over a certain dB(A) limit, measurement of said sound level shall be made with a sound level meter by a duly authorized representative of the city manager to include, but not be limited to an officer or official from code compliance, police department, or planning and inspections.

(Ord. No. 18908, § 5, 2-26-2019)

Editor's note—Ord. No. 18908, § 5, adopted Feb. 26, 2019, repealed the former § 9.40.050, and enacted a new § 9.40.050 as set out herein. The former § 9.40.050 pertained to interior noise standards and derived from Prior code § 12-111.

9.40.060 Identification of violator.

A person responsible for violations of this chapter are identified as follows:

A. At residential property. Any resident, owner or occupant present at the time of the offense, and any guest or trespasser with the ability to control the sound level at the time of the offense when no resident, owner or occupant is present at the time of the offense.

B. At nonresidential property. Any property owner, business owner, operator, manager, employee in charge, and all persons in control or in possession of the noise nuisance generating instrument or device at the time of the offense.

C. At any location with an unattended noise nuisance producing machine, device, instrument, animal or combination of same. Any person who leaves unattended any machine, instrument, device, animal, or any combination of same, which thereafter commences to produce a sound in violation of this chapter.

(Ord. No. 18908, § 6, 2-26-2019)

Editor's note—Ord. No. 18908, § 6, adopted Feb. 26, 2019, repealed the former § 9.40.060, and enacted a new § 9.40.060 as set out herein. The former § 9.40.060 pertained to additional noise standards and derived from Prior code § 12-112.

9.40.070 Penalties.

A. Any person who violates any provision of this chapter shall, upon conviction, be guilty of a Class C misdemeanor and punished by a fine not to exceed five hundred dollars. Unless otherwise specifically set forth herein, or in state law as adopted, allegation and evidence of culpable mental state are not required for the proof of an

offense defined by this ordinance. Each act of violation and each day of violation is considered a separate violation.

B. Any person who obstructs, impedes, or interferes with a representative of the city, with a representative of a city department, with monitoring equipment, or with a person who has been ordered to abate a situation pursuant to this chapter and who is lawfully engaged in such abatement is guilty of a Class C misdemeanor and upon conviction is punishable by a fine not to exceed five hundred dollars. Unless otherwise specifically set forth herein, or in state law as adopted, allegation and evidence of culpable mental state are not required for the proof of an offense defined by this ordinance. Each act of violation and each day of violation is considered a separate violation.

C. In addition to proceeding under authority of subsections A. and B. of this section, the city is entitled to pursue all other criminal and civil remedies to which it is entitled under authority of statutes, including a civil action in accordance with Chapter 54 of the Texas Local Government Code to recover a civil penalty not to exceed one thousand dollars for each day or portion of a day during which the violation is committed, continued, or permitted, or other ordinances against a person that remains in violation of this chapter.
(Ord. No. 18908, § 7, 2-26-2019; Ord. No. 019696, § 5, 12-17-2024)

Editor's note—Ord. No. 18908, § 7, adopted Feb. 26, 2019, repealed the former § 9.40.070, and enacted a new § 9.40.070 as set out herein. The former § 9.40.070 pertained to noise sensitive zones and derived from Prior code § 12-114.

9.40.080 Enforcement.

The director of the planning and inspections department, the director of code enforcement, or the police chief or their designated representatives, shall be responsible for the enforcement of this chapter.
(Ord. No. 18908, § 8, 2-26-2019; Ord. No. 019696, § 6, 12-17-2024)

Editor's note—Ord. No. 18908, § 8, adopted Feb. 26, 2019, repealed the former § 9.40.080, and enacted a new § 9.40.080 as set out herein. The former § 9.40.080 pertained to noise level measurement and derived from prior code § 12-115.

9.40.090 Reserved.

Editor's note—Ord. No. 18908, § 9, adopted Feb. 26, 2019, repealed § 9.40.10, which pertained to vibration and derived from prior code § 12-116.

9.40.100 Reserved.

Editor's note—Ord. No. 18908, § 10, adopted Feb. 26, 2019, repealed § 9.40.100, which pertained to proposed developments and derived from Ord. 16812 § 32 (part), 2007; prior code § 12-117.

9.40.110 Reserved.

Editor's note—Ord. No. 18908, § 11, adopted Feb. 26, 2019, repealed § 9.40.110, which pertained to motor vehicle maximum sound levels and derived from prior code § 12-118.

9.40.120 Reserved.

Editor's note—Ord. No. 18908, § 12, adopted Feb. 26, 2019, repealed § 9.40.120, which pertained to exemptions and derived from prior code § 12-113; Ord. 8571 § 3, 1986; Ord. 12579 § 1, 1995; Ord. No. 17338, § 3, 6-1-2010; Ord. No. 17981, § 1, 4-2-2013; Ord. No. 18005, § 1, 4-30-2013.

9.40.130 Reserved.

Editor's note—Ord. No. 18908, § 13, adopted Feb. 26, 2019, repealed § 9.40.130, which pertained to enforcement and derived from Ord. 16812 § 32 (part), 2007; prior code § 12-108.

9.40.140 Reserved.

Editor's note—Ord. No. 18908, § 14, adopted Feb. 26, 2019, repealed § 9.40.140, which pertained to violation—penalty and derived from Ord. 9430 § 3, 1988; prior code § 12-119.

Chapter 9.44

RESERVED*

*Editor's note—Ord. No. 18470, § 1, adopted Feb. 23, 2016, repealed ch. 9.44, which pertained to midwives and derived from Ord. No. 8870 (part), 1986; Ord. No. 9607, §§ 1, 2, 1989; Ord. No. 9810, §§ 2, 3, 1989; Ord. No. 10598, §§ 2, 3, 1991; Ord. No. 10657, § 3, 1991; Ord. No. 12125, §§ 1, 2, 1994; Ord. No. 12700, §§ 1 (part), 2—4, 17—19 (part), 1996; Ord. No. 16812, §§ 1 (part), 35 (part), 36, (part), 37—41, 2007.

Chapter 9.48

PUBLIC SWIMMING POOLS AND SPAS

Sections:

Article I. General Provisions

9.48.010 Purpose.
9.48.020 Applicability.
9.48.030 License required.
9.48.040 Definitions.

Article II. Standards

9.48.050 Compliance with state statutes.
9.48.060 Enclosure.
9.48.070 Water and sewer system.
9.48.080 Electrical requirements.
9.48.090 Mechanical ventilation.
9.48.100 Depth markers.
9.48.110 Recirculation system.

Article III. Operations

9.48.120 Water testing.
9.48.130 Safety equipment.
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Article IV. Enforcement

9.48.150 Inspection.
9.48.160 Use prohibited.
9.48.240 Seasonal closures.
9.48.250 Suspension of licenses and closure by director.
9.48.255 Revocation of licenses and closure by director.
9.48.260 Violation and penalty.
9.48.270 Appeals.

Article I. General Provisions

9.48.010 Purpose.

The purpose of this chapter is to establish minimum standards for the operation and maintenance of public pools and spas to ensure the health and safety for users. These standards are based in part on the Texas Administrative Code, Title 25, Health Services, Part I, Texas Department of State Health Services, Chapter 265, General Sanitation, Subchapter L, Public Swimming Pools and Spas. These standards shall be construed to be consistent with good public health, engineering and safety practices. (Ord. 16812 § 1 (part), 2007; Ord. 15238 § 1 (part), 2002; Ord. No. 019443, § 1, 3-14-2023)

9.48.020 Applicability.

The requirements of this chapter shall apply to public swimming pools and public spas, as herein defined, with an application for building or related permits dated on or after October 1, 2002. In addition, the requirements of this chapter shall apply to existing public swimming pools and public spas twelve months after the issuance of the next renewal license or a new license for that public swimming pool or public spa. (Ord. 15238 § 1 (part), 2002)

9.48.030 License required.

A. No person shall operate or maintain a public pool or public spa without having obtained and paid for a valid license from the permit official in accordance with Chapter 5.32 (Public Swimming Pool Licenses). The license shall be available at the facility during the hours of operation and shall be subject to inspection upon request from any city inspector.

B. No person shall build, construct, alter or modify a public swimming pool or public spa without first obtaining a permit from the permit official in accordance with the requirements of City Code Chapter 18.02 (Building and Construction Administrative Code). Drawings submitted to obtain such a permit shall be subject to the approval of the permit official. (Ord. 16980 § 5, 2008; Ord. 15238 § 1 (part), 2002)
(Ord. No. 17272, § 2, 1-26-2010; Ord. No. 17392, § 6, 8-24-2010, eff. 9-1-2010)

9.48.040 Definitions.

A. "Anti-vortex drain cover" means a drain cover that is designed to prevent the water from creating a whirlpool while the pump is in use and to prevent swimmer entrapment.

B. "Breakpoint" means the point in a rising chlorine residual at which the concentration of available chlorine becomes great enough to oxidize all organic matter and ammonia compounds in a pool or spa completely.

C. "Class A pool" means a public swimming pool used, with or without a fee, for accredited competitive aquatic events such as Federation Internationale de Natation Amateur (FINA), United States Swimming, United States Diving, National Collegiate Athletic Association (NCAA), National Federation of State High School Associations (NFSHSA) events. A Class A pool may also be used for recreation.

D. "Class B pool" means a public swimming pool used for public recreation and open to the general public with or without a fee.

E. "Class C pool" means a public swimming pool operated for and in conjunction with lodgings such as hotels, motels, apartments, condominiums, manufactured home communities, property owners associations, clubs, or a school, college or university while being operated for academic or continuing education classes or clubs or practice events (excluding competition events). The use of such a pool shall be open to occupants, members or students, etc. and their guests, but not open to the general public.

F. "Class D pool" means a public splasher pool with a maximum water depth of thirty-six inches at any point or wading pool with a maximum depth of twenty-four inches at any point.

G. "Director" means the director of the department of environmental services, or designee.

H. "Disinfecting equipment" means any type of commercial chlorinator or brominator.

I. "Existing pool" means a public swimming pool or public spa constructed prior to October 1, 2002.

J. "Lifeguard" means a person with approved certification employed to safeguard other swimmers as certified by Title 25 of the T.A.C. Section 265.199.

K. "Licensee" means a person who has a valid license to operate a public swimming pool or public spa.

L. "Operator" means the business manager, complex manager, property owners, association manager, rental agent or other individual who is in charge of the day-to-day operation or maintenance of the property that includes a public swimming pool or public spa and is the person responsible to ensure that the public pool or public spa and associated facilities comply with state and local public swimming pool or spa operation and maintenance standards.

M. "Person" means any person, firm, partnership, association, corporation, company or organization of any kind.

N. "Private pool" means a swimming pool located at the property of a single-family or two-family dwelling used or intended for use solely by the owner, operator or lessee thereof, family and invited friends without payment of any fee.

O. "Public spa" means any spa, other than a private spa, including therapeutic spas.

P. "Public swimming pool" means any class of swimming pool, including therapeutic pools, other than a private pool.

Q. "Recirculation system" consists of pumps, piping, filters, water conditioning, disinfecting and other accessory equipment.

R. "Spa" means a hydro-therapeutic pool, also known as a jacuzzi.

S. "Superchlorination (shock treatment)" means the practice of adding eight to ten times the normal chlorine dose to destroy algae or reach breakpoint for the reduction of chloramines.

T. "Swimming pool" means a body of water, over twenty-four inches in depth, in an artificial or semi-artificial receptacle or other container, whether located indoors or outdoors, used or intended to be used for public or private swimming, wading or recreational bathing by adults and/or children, whether or not any charge or fee is imposed for its use and which is operated and maintained by any person. This includes all structures, wading pools, appurtenances, equipment, appliances and other facilities appurtenant to and intended for the operation and maintenance of the swimming pool.

U. "Temporary public swimming pool or public spa" means an above ground public swimming pool or public spa intended for public use operated under a temporary license for an event for a limited number of days.

V. "Water sample" means a portion of water taken from a pool or spa to determine the quality. (Ord. 16812 §§ 43 (part), 44—47, 2007; Ord. 15238 § 1 (part), 2002)
(Ord. No. 17272, § 3, 1-26-2010)

Article II. Standards

9.48.050 Compliance with state statutes.

In addition to the requirements stated herein, the licensee for a public swimming pool or public spa shall also comply with the regulations in Title 25 of the Texas Administrative Code, Chapter 265. (Ord. 16812 § 1 (part), 2007; Ord. 15238 § 1 (part), 2002)
(Ord. No. 17272, § 1, 1-26-2010)

9.48.060 Enclosure.

In addition to other maintenance requirements herein, the licensee for a public swimming pool or public spa shall maintain a proper enclosure, fence or wall in compliance with Section 265.200 of Title 25 of the Texas Administrative Code and the City of El Paso Building Code. (Ord. 15238 § 1 (part), 2002)

9.48.070 Water and sewer system.

The water supply system and the sanitary sewer system serving existing and new public swimming pools and public spas and all plumbing fixtures, including drinking fountains, lavatories and showers shall comply with Chapter 18.20 (Plumbing Code) of the El Paso City Code. (Ord. 16812 § 3 (part), 2007; Ord. 15238 § 1 (part), 2002)

9.48.080 Electrical requirements.

The electrical systems serving existing and new public swimming pools and public spas shall comply with Chapter 18.16 (Electrical Code) of the El Paso City Code. Public swimming pools and public spas shall be equipped with underwater lights providing sufficient lighting to illuminate the entire pool bottom. (Ord. 16812 § 3 (part), 2007; Ord. 15238 § 1 (part), 2002)

9.48.090 Mechanical ventilation.

Indoor public swimming pools, public spas, and their bathhouses, dressing rooms, shower rooms and toilet areas shall be adequately ventilated either by natural or mechanical means. Mechanical ventilation provided to meet the requirements of this section shall comply with Chapter 18.12 (Mechanical Code) of the El Paso City Code. (Ord. 16812 § 3 (part), 2007; Ord. 15238 § 1 (part), 2002)

9.48.100 Depth markers.

Public swimming pools and public spas shall comply with Title 25 of the Texas Administrative Code, Chapter 265. (Ord. 15238 § 1 (part), 2002)
(Ord. No. 17272, § 1, 1-26-2010)

9.48.110 Recirculation system.

The recirculation system disinfecting equipment for public swimming pools and public spas shall be securely anchored to prevent the accidental spilling of chemicals and shall be equipped with a flow meter. In addition, public pools and spas shall comply with Title 25 of the Texas Administrative Code, Chapter 265. (Ord. 15238 § 1 (part), 2002)
(Ord. No. 17272, §§ 1, 4, 1-26-2010)

Article III. Operations

9.48.120 Water testing.

A. Every public swimming pool or public spa shall be inspected and tested at least once annually by the director. The licensee of the public swimming pool or public spa shall cooperate fully with the director in performing such reviews and testing.

B. The licensee of public swimming pools and spas shall maintain a daily log on those days of operation of the following:

1. At least two equitably spaced test measurements for pH and disinfectant residual recorded for each day of operation.

2. At least two equitably spaced test measurements for chlorine recorded for each day of operation.

3. At least one daily reading from the gallons per minute (gpm) gauge located on the filtration system.

4. The date and duration when the filtration system is backwashed.

5. The date when the public swimming pool or public spa is superchlorinated.

6. Logs shall be kept for two years and shall be available for review upon request by the director.

C. Public swimming pools or public spas whose pH levels or free chlorine levels are outside the acceptable limits defined in Section 9.48.150 shall be closed in accordance with Section 9.48.250. Such closed facilities shall not be reopened without the approval of the director. (Ord. 16812 § 43 (part), 2007; Ord. 15238 § 1 (part), 2002)
(Ord. No. 17272, § 5, 1-26-2010)

9.48.130 Safety equipment.

A. Lifesaving equipment for all public swimming pools shall comply with Title 25 of the Texas Administrative Code, Chapter 265.

B. All public swimming pools and spas shall be equipped with a first-aid kit meeting OSHA requirements.

1. Public pools and public spas shall be equipped with a standard twenty-four unit first aid kit. The kit shall be housed in a durable container, kept currently filled and ready for use (including disease transmission barriers and cleansing kits that meet OSHA standards).

2. First-aid kits shall be within two hundred feet of the public pool and public spa. If not readily visible, a sign shall be posted to indicate location of the kit.

3. Public spas located within the pool enclosure of a Class A, B, C or D pool may use the same first-aid kit.

C. At public swimming pools and public spas, a sign with clearly legible letters at least four inches high shall be placed in plain view within the pool enclosure and shall read "In Case of Emergency — Call 911". The sign must indicate the location of the nearest accessible telephone. An operating phone must be located within 200 feet of the pool or spa.

D. At public swimming pools and public spas, a sign with clearly legible letters at least one inch high shall be posted in plain view within the pool enclosure stating the design bathing load capacity. The operator or owner shall be responsible for seeing that the maximum capacity is not exceeded.

E. Public swimming pools and public spas shall maintain permanent signs with clearly legible letters posted in plain view within the pool or spa enclosure showing the following:

1. The hours during which the public swimming pool or public spa is open for use.

2. For Class C and Class D pools where no lifeguard is provided, a sign shall be placed in plain view and shall state "NO DIVING" along with an international warning symbol for no diving. The letters "NO DIVING" and the symbol shall be at least four inches high.

3. For pools where no lifeguard service is required, a warning sign shall be placed in plain view and shall state "WARNING — NO LIFEGUARD ON DUTY" with clearly legible letters at least four inches high. In addition, the sign shall also state in letters at least two inches high "CHILDREN SHOULD NOT USE POOL WITHOUT ADULT SUPERVISION".

4. The rules and regulations related to the facility.

F. All existing spas shall comply with Title 25 of the T.A.C. Section 265.199. (Ord. 15238 § 1 (part), 2002)
(Ord. No. 17272, §§ 1, 6, 1-26-2010)

9.48.140 Supervision of minors.

A. Regardless of whether a public pool or public spa is under the supervision of a lifeguard (as defined in Section 9.48.040 of this code), a parent, guardian or person having supervision, care, custody or control of a minor(s), twelve years

of age or under, must accompany the minor(s) and keep the minor(s) within view while the minor(s) is/are swimming or attempting to swim.

B. A parent, guardian or person having supervision, care, custody or control of a minor(s), twelve years of age or under, shall not allow such minor(s) to swim in any public pool or public spa except while such public pool or public spa is designated as open.

C. It is unlawful for the person in charge of a public pool or public spa, to knowingly allow any minor(s) twelve years of age or under to swim or attempt to swim in such pool or spa when not supervised as required in this section or when the pool is not designated as open. (Ord. 15238 § 1 (part), 2002)
(Ord. No. 17272, § 7, 1-26-2010)

Article IV. Enforcement

9.48.150 Inspection.

A. The director, or designated representative, may enter any facility at reasonable times to inspect, enforce or investigate any unsafe condition or violation, or to perform any duty imposed under this chapter or chapter 5.32. The inspection may be conducted regardless of whether a previous inspection revealed compliance. If such facility is occupied, the director shall first present proper credentials and request entry permission. If unoccupied, the director shall make an effort to locate the owner or other person responsible for the premises to request entry permission.

B. If such entry is denied or permission cannot be obtained, the director shall have recourse to every remedy provided by law to secure entry.

C. When the director obtains a legal inspection warrant or other remedy to secure entry, the owner, occupant or person having charge, care or control of the building or premises shall, upon a proper request, promptly permit the director entrance to inspect and investigate pursuant to this chapter. Failure to grant access shall constitute a violation of this chapter.

D. For public swimming pools or public spas in violation of this chapter, the director of the department of environmental services shall issue a correction notice to the owner or operator regarding the violation(s). The owner or operator receiving a correction notice shall promptly remedy the violation, ask for a re-inspection by the director of the department of environmental services, and pay the re-inspection fee identified in the adopted budget resolution for the current fiscal year or other appropriately adopted resolution by the city council.

1. For public swimming pools or public spas that are applying for a business license or a renewal license, a license shall not be issued or renewed and the facility shall not be used until the violation(s) have been satisfactorily corrected and approved by the director of the department of environmental services and all fees have been paid.

2. A re-inspection fee shall be paid for each re-inspection performed by the director of the department of environmental services. Such fees shall be paid prior to the scheduled date of re-inspection.

E. The director shall provide written notice or copy of the inspection report to the owner or person in charge of the public swimming pool or public spa when a violation of any provision of this chapter is determined. Such notice or report shall include:

1. Name and address of the pool or spa;

2. Description of each violation; and

3. A specific, reasonable time period for correction of each violation as defined by the following categories:

a. Category A violation — 24 hours to remedy violation.

i. The water clarity is such that a five-inch diameter black circle on a white field cannot be seen at the deepest part of the public swimming pool or public spa.

ii. The pH in a public swimming pool or public spa is less than seven or greater than seven and eight tenths.

iii. The free available chlorine (residual) in a public swimming pool is less than one part per million (ppm) or greater than eight ppm; or the free available chlorine (residual) in a public spa is less than two ppm or greater than eight ppm.

iv. The public spa temperature is greater than one hundred four degrees Fahrenheit.

v. The public swimming pool temperature is greater than ninety-eight degrees Fahrenheit.

vi. The suction outlet or main drain suction cover of a public swimming pool or public spa is missing, loose or broken.

vii. The safety vacuum release system, automatic pump shutoff system, and/or anti-entrapment devices are missing or non-operational.

b. Category B violation — 7 calendar days to remedy violation.

i. Missing or non-functional safety equipment.

ii. Failure to comply with depth marker requirements.

iii. Failure to maintain proper documentation or daily log.

iv. Inadequate or improper signage.

c. Category C violation — 30 calendar days to remedy violation.

i. Failure to comply with enclosure requirements.

ii. Failure to comply with water and sewer system requirements.

iii. Failure to comply with electrical requirements.

iv. Failure to comply with mechanical ventilation requirements.

v. Failure to provide an operating phone located within 200 feet of pool or spa.

4. A statement that the license is subject to suspension or revocation and that legal action may be taken for failure to comply with the notice;

5. A statement that the person receiving the notice may appeal by following the procedures provided in this chapter. (Ord. 16812 §§ 3 (part), 43 (part), 2007; Ord. 15238 § 1 (part), 2002)
(Ord. No. 17272, § 8, 1-26-2010)

9.48.160 Use prohibited.

Use of a public swimming pool or public spa that has been posted as closed for maintenance or closed by the director is prohibited. Such use shall constitute a violation of this chapter. (Ord. 16812 § 43 (part), 2007; Ord. 15238 § 1 (part), 2002)

9.48.240 Seasonal closures.

When a public swimming pool or public spa is closed for extended periods, the enclosure of such public pool or public spa shall be locked and prominently posted as being "closed." A closed public swimming pool or public spa shall be completely drained or shall be maintained with a sufficient disinfectant agent to prevent stagnation, growth of algae, breeding of mosquitoes or other pathogenic organisms. (Ord. 15238 § 1 (part), 2002)

9.48.250 Suspension of licenses and closure by director.

A. The director of the department of environmental services may order the immediate closure and suspend the license of a public swimming pool or public spa when any one of the following conditions exists:

1. Category A violation, as identified in this chapter; or

2. The public swimming pool or public spa does not have a current valid license; or

3. A violation not appearing on this list but appearing elsewhere in this chapter regarding public pool or spa health and safety and which has not been corrected within the number of days indicated on a written notice of violation.

B. Failure to comply with the notice of closure may subject the public swimming pool or public spa to other enforcement provisions of this chapter.

C. The director of the department of environmental services shall post the facility with a suspended license with the following sign at each entrance to the facility and in a prominent location within the pool/spa area:

POOL/SPA CLOSED BY ORDER OF THE CITY OF EL PASO DEPARTMENT OF EN-

VIRONMENTAL SERVICES—NO SWIMMING—VIOLATIONS ARE SUBJECT TO PROSECUTION UNDER SECTION 9.48.260 OF THE EL PASO CITY CODE.

D. A facility whose license has been suspended shall immediately cease further use until the owner or operator has satisfactorily corrected the violation(s) or condition(s), has passed inspection by the director of the department of environmental services and has been authorized in writing by the director of the department of environmental services that the license has been reinstated and that normal operations may resume.

E. The director of the department of environmental services shall notify the permit official of all suspensions and reinstatements of licenses.

F. The pool owner or operator whose license is suspended shall contact the director of the department of environmental services and request a re-inspection. After successfully passing the re-inspection as set forth in this chapter and after paying the appropriate re-inspection fee as identified in the adopted budget resolution for the current fiscal year or other appropriately adopted resolution by City Council, a closed public swimming pool or public spa may be reopened. (Ord. 16812 § 43 (part), 2007; Ord. 15238 § 1 (part), 2002)

(Ord. No. 17272, § 9, 1-26-2010; Ord. No. 17392, § 6, 8-24-2010, eff. 9-1-2010)

9.48.255 Revocation of licenses and closure by director.

A. The director may order the immediate closure and revoke the license of a public swimming pool or spa when any one of the following conditions exists:

1. A public swimming pool or public spa continues to be open for business while its license is suspended;

2. An owner or operator or any employee of a public swimming pool or public spa has interfered with the director of the department of environmental services in the performance of official duties; or

3. The license for a public swimming pool or spa has been suspended for a health or safety issue within the preceding twelve calendar months and there is a failure to correct, within the time allotted, a hazard to public health or safety that was set out as a reason for most recent notice of suspension of the license.

B. The director of the department of environmental services shall post the facility with a revoked license with the following sign at each entrance to the facility and in a prominent location within the pool/spa area:

POOL/SPA CLOSED BY ORDER OF THE CITY OF EL PASO DEPARTMENT OF ENVIRONMENTAL SERVICES—NO SWIMMING—VIOLATIONS ARE SUBJECT TO PROSECUTION UNDER SECTION 9.48.260 OF THE EL PASO CITY CODE.

C. A facility whose license has been revoked shall immediately cease further use until the owner or operator has secured a new license or the revocation is reinstated through an appeal.

D. The director of the department of environmental services shall notify the permit official of all revocations and reinstatements of licenses.

E. After a six month period from the date of revocation a public swimming pool or public spa with a revoked license may only be reopened after completing a new application and paying the appropriate application fee as identified in the adopted budget resolution for the current fiscal year or other appropriately adopted resolution by city council, and successfully passing the inspection, and as further described in Chapter 5.32 of the City Code.

(Ord. No. 17272, § 10, 1-26-2010; Ord. No. 17392, § 6, 8-24-2010, eff. 9-1-2010))

9.48.260 Violation and penalty.

Any person violating any provision of this chapter shall upon conviction, be guilty of a misdemeanor and be punished by a fine not to exceed two thousand dollars. Each day the violation occurs shall constitute a separate offense. (Ord. 16812 § 48, 2007: Ord. 15238 § 1 (part), 2002)

9.48.270 Appeals.

A. The owner or operator of the licensed public swimming pool or public spa that has been served with a suspension or revocation notice or that has been denied the issuance or renewal of a business license, may appeal the action of the director of the department of environmental services to the city manager. The owner or operator shall prepare a written appeal providing justification as to how the facility is in compliance with the City Code. Within ten business days of receipt of the written appeal from the owner or operator, the director of the department of environmental services shall prepare a report indicating the reasons for the suspension or revocation or the license denial, and shall provide a copy to the owner or operator. Such director's decision is final unless within ten calendar days from the date of receiving such director's report, the owner or operator files with the city clerk a written appeal to the city manager specifying reasons for the appeal. Said appeal shall also include a written rebuttal to such director's report.

B. The city manager or his designated deputy city manager shall review the report of the director of the department of environmental services and the appellant's rebuttal. The city manager or designee may allow the appellant to make an oral presentation or submit additional rebuttal. The city manager or designee shall make a ruling on the appeal within a reasonable period of time after the appeal has been filed.

C. The city manager or designee shall sustain, reverse or modify the action of the director of the department of environmental services and shall notify the appellant of his decision in writing. The decision of the city manager or designee is final.

(Ord. No. 17272, § 11, 1-26-2010)

Chapter 9.50

PUBLIC AND WORKPLACE SMOKING RESTRICTIONS*

Sections:

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9.50.040 Prohibition of smoking in places of employment.

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Article III. Places Where Smoking Is Not Regulated

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*__Editor's note__—Ord. No. 18193, § 1, adopted June 17, 2014, repealed the former Ch. 9.50, §§ 9.50.010—9.50.160, and enacted a new Ch. 9.50 as set out herein. The former Ch. 9.50 pertained to similar subject matter and derived from Ord. No. 14878 § 1(part), 2001. See also the Code Comparative Table and Ordinance Disposition List for complete derivation.

Article I. General Provisions

9.50.010 Purpose.

The purpose of this chapter is to (1) improve and protect the public's health by eliminating smoking in public places and places of employment, and certain outdoor areas; (2) guarantee the right of nonsmokers to breathe smoke-free air; and, (3) recognize that the need to breathe smoke-free air shall have priority over the choice to smoke.

9.50.020 Definitions.

The following words and phrases, whenever used in this chapter, shall be construed as defined in this section:

"Bar" means an area which is devoted primarily to the serving of alcoholic beverages for consumption by guests on the premises and in which the serving of food or other products is only incidental to the consumption of such beverages. A "bar" includes those facilities located within a hotel, motel or other similar transient occupancy establishment.

"Business" means any sole proprietorship, partnership, joint venture, corporation or other business entity formed for profit-making purposes, including retail establishments where goods or services are sold as well as professional corporations and other entities where legal, medical, dental, engineering, architectural or other professional services are delivered.

"E-cigarette" or "e-hookah" means any electronic oral device or nicotine delivery device, such as one composed of a heating element, battery, and/or electronic circuit, which provides a vapor of nicotine or any other substance, and the use or inhalation of which simulates smoking. The term shall include any such device, whether manufactured, distributed, marketed, or sold as an e-cigarette, e-cigar, e-pipe, e-hookah, hookah pen or under any other product name or description.

"Employee" means any person who is employed by or engaged under contract by any em-

ployer in consideration for direct or indirect monetary wages or profit, and any person who volunteers his or her services for an employer as defined in this Section 9.50.020.

"Employer" means any person, partnership, corporation, including a municipal corporation, or nonprofit entity which employs or contracts the services of one or more individual persons or uses the volunteer services of one or more individual persons.

"Enclosed area" means all space between a floor and ceiling which is enclosed on all sides by solid walls or windows (exclusive of door or passage ways) which extend from the floor to the ceiling, including all space therein screened by partitions which do not extend to the ceiling or are not solid.

"Food establishment" means food product or food service establishments, as those terms are defined in Chapter 9.12 of the El Paso City Code.

"Health care facility" means an office or institution providing care or treatment of diseases, whether physical, mental, or emotional, or other medical, physiological, or psychological conditions, including but not limited to, hospitals, rehabilitation hospitals or other clinics, including weight control clinics, nursing homes, long-term care facilities, homes for the aging or chronically ill, laboratories, and offices of physicians, chiropractors, physical therapists, psychiatrists, dentists, and all specialties within these professions. This definition shall include, but not be limited to, all waiting rooms, hallways, private rooms, semiprivate rooms, and wards within health care facilities.

"Park" means "city park" as set forth in the El Paso City Code Section 13.24.010, as amended, namely, any property in the city that is designated, set aside or operated by the city for public recreational purposes, whether dedicated or developed as a park or not, or that is located in any street right-of-way and is maintained as public open space, including all buildings, recreation facilities, playgrounds, parking lots, driveways, pathways, trails and other areas within a park, to include scenic drive. Designation of property as a city park pursuant to this subsection is solely for the purposes of identifying areas governed by this chapter and shall not be construed to be a dedication of any property as a park.

"Place of employment" means any enclosed area under the control of a public or private employer which employees normally frequent during the course of employment, including, but not limited to, work areas, employee lounges and restrooms, conference and classrooms, employee cafeterias and hallways. A private residence is not a "place of employment" unless it is used as a child care, adult day care or health care facility or there is an employee other than the occupant of the residence present.

"Playground" means any park or recreational area that is designed in part to be used by children and that has play or sports equipment installed or that has been designated or landscaped for play or sports activities, or any similar facility located on public or private school grounds or on city property.

"Private club" means an organization, whether incorporated or not, which is the owner, lessee, or occupant of a building or portion thereof used for club purposes, which is operated solely for a recreational, fraternal, social, patriotic, political, benevolent, or athletic purpose, but not for monetary gain, and which only sells alcoholic beverages incidental to its operation. The affairs and management of the organization are conducted by a board of directors, executive committee, or similar body chosen by the members at an annual meeting. The organization has established bylaws and/or a constitution to govern its activities. The organization has been granted an exemption from the payment of federal income tax as a club under 26 U.S.C. Section 501.

"Private place" means any enclosed area to which the public is not invited or in which the public is not permitted, including but not limited to, personal residences; private clubs or personal automobiles. A privately-owned business, open to the public, is not a "private place."

"Retail tobacco store and smoking establishment" means a retail store or establishment utilized primarily for the sale and use of tobacco and smoking products and accessories and in which the sale of other products is merely incidental.

"Service line" means any indoor line at which one or more persons are waiting for or receiving service of any kind, whether or not such service involves the exchange of money.

"Smoking" means inhaling, exhaling, burning or carrying any lighted or heated cigar, cigarette, pipe, e-cigarette, e-hookah, weed, plant or combustible substance in any manner or in any form, including any device that allows for combustion or conduction of a product for the purpose of inhaling smoke or vapor.

"Sports arena" means sports pavilions, stadiums, gymnasiums, health spas, boxing arenas, swimming pools, roller and ice rinks, bowling alleys and other similar places where members of the general public assemble either to engage in physical exercise or activities, participate in athletic competition, or witness sporting events, whether enclosed indoors or outdoors.

Article II. Prohibition of Smoking

9.50.030 Prohibition of smoking in public places.

A. Smoking shall be prohibited in all enclosed areas of public places within the city, and within twenty feet of the entrance of such places, including, but not limited to, the following (except for certain outdoor areas specifically designated as smoking areas by city manager or designee for certain city facilities):

1. Elevators;

2. Restrooms, lobbies, reception areas, hallways and any other common-use areas;

3. Buses, semi-enclosed bus stops, bus terminals, taxicabs, shuttle vehicles, train stations, airports (except for certain outdoor areas specifically designated as smoking areas by the El Paso International Airport Director of Aviation) and other facilities and means of public transit under the authority of the city (except for city property to which the city has contractually released a leasehold interest), as well as ticket, boarding, and waiting areas of all transit depots;

4. Service lines;

5. Retail stores and shopping malls;

6. All enclosed areas in all businesses and nonprofit entities;

7. Food establishments, nightclubs and bars;

8. Galleries, libraries, museums and zoo facilities and grounds;

9. Any facility which is primarily used for exhibiting any motion picture, stage, drama, lecture, musical recital or other similar performance, except that performers may smoke when the smoking is part of a stage production;

10. Sports arenas, bowling facilities and convention facilities;

11. Every room, chamber, place of meeting or public assembly, including school buildings under the control of any board, council, commission, committee, including joint committees, or agencies of the city, to the extent such place is subject to the jurisdiction of the city;

12. Health care facilities;

13. Lobbies, hallways, and other common areas in apartment buildings, condominiums, trailer parks, retirement facilities, nursing homes, and other multiple-unit residential facilities;

14. Polling places;

15. Bingo venues;

16. Child care and adult day care facilities.

9.50.040 Prohibition of smoking in places of employment.

A. Except as herein provided, smoking shall be prohibited in every place of employment.

B. It shall be the responsibility of employers to provide a smoke-free workplace for all employees.

9.50.050 Additional declaration of establishments as non-smoking.

Notwithstanding any other provision of this section, any owner, operator, manager or other

person who controls any establishment, facility or outdoor area may declare that the entire establishment, facility or outdoor area is a nonsmoking place. Smoking shall be prohibited in any place in which a sign conforming to the requirements of Section 9.50.090 is posted.

9.50.060 Reserved.

9.50.070 Application of article to certain city-owned facilities.

Except for those outdoor areas designated as smoking areas by city manager or designee, and except for those outdoor areas designated as smoking areas at El Paso International Airport facilities by the El Paso International Airport Director of Aviation, all city-owned enclosed areas and city-owned outdoor facilities, not subject to a leasehold interest provided to a non-city person or entity, shall be nonsmoking at all times, including, but not limited to, the following places:

A. Sports arenas and stadiums.

B. Parks and playgrounds.

C. In and within twenty feet from the entrance of all outdoor public transportation stations, platforms and shelters under the authority of the city, except for those outdoor areas designated as smoking areas by the El Paso International Airport Director of Aviation.

D. Parking lots.

(Ord. No. 18193, § 2, 6-17-2014)

Editor's note—The prohibition of smoking in outdoor city facilities shall take effect on January 1, 2015.

Article III. Places Where Smoking Is Not Regulated

9.50.080 Private and public places.

A. Notwithstanding any other provision of this chapter to the contrary, the following areas shall not be subject to the smoking restrictions of this chapter:

1. Private residences, except when used as a child care, adult day care or health care facility;

2. No more than twenty-five percent of hotel and motel rooms rented to guests;

3. Retail tobacco stores and smoking establishments in isolated or contained physical facilities with isolated venting and air controls;

4. Outdoor places of employment except those covered in Section 9.50.070;

5. Outdoor areas designated as smoking areas by the city manager or designee for certain city facilities;

6. In the case of El Paso International Airport facilities, outdoor areas designated as smoking areas by the El Paso International Airport Director of Aviation.

Article IV. Signs

9.50.090 Posting of signs.

A. The owner, manager or other person having control of such building or other area where smoking is prohibited by this chapter shall have a conspicuously posted sign at each entrance clearly stating that smoking is prohibited within the building or other areas where smoking is prohibited.

B. Such "No Smoking" signs shall have bold lettering of not less than one inch in height, or the international "No Smoking" symbol (consisting of a pictorial representation of a burning cigarette enclosed in a circle with bar across it) may be used. (Ord. No. 18193, § 2, 6-17-2014)

Editor's note—Requirements for isolated venting and air controls in retail tobacco stores and smoking establishments shall shall take effect on July 1, 2015.

Article V. Reserved

9.50.100 Reserved.

Article VI. Enforcement, Violations and Penalties

9.50.110 Enforcement.

A. Enforcement of this chapter shall be implemented by the city development department, city's department of environmental services, the city's department of public health, and the city's fire and police departments.

B. Any person may register a complaint under this chapter to initiate enforcement with the

city's department of public health, the city's department of environmental services and the city's police department.

C. It shall be an affirmative defense to prosecution of an owner, manager or other person having control of an establishment regulated by this chapter if the owner, manager or other person having control of an establishment regulated by this chapter asks a smoker to stop smoking and if the smoker does not cease smoking inside that establishment regulated by this chapter, the owner, manager or other person having control of an establishment regulated by this chapter shall place a no smoking sign on the table and shall contact the departments identified in Subsection 9.50.110A.

9.50.120 Nonretaliation.

No person nor employee shall discharge, refuse to hire or in any manner retaliate against any employee, applicant for employment or customer because such employee, applicant or customer exercises any right to a smoke free environment afforded by this chapter.

9.50.130 Violations and penalties.

A. It shall be unlawful for an owner, manager or other person having control of an establishment regulated by this chapter to fail to comply with all of its provisions, except for violations noted in Subsection 9.50.130B.

B. It shall be unlawful for any person to smoke in any area where smoking is prohibited by the provisions of this chapter.

C. Any person who violates any provision of this chapter shall be guilty of an infraction, punishable by:

1. Any person who violates any provision of this chapter shall be guilty of an infraction punishable by a fine not exceeding one hundred dollars;

2. Any person who violates any provision of this chapter within one year of receiving a fine under Subsection 9.50.130C.1, shall be guilty of an infraction punishable by a fine not to exceed two hundred dollars;

3. Any person who violates any provision of this chapter within one year of receiving a fine under Subsection 9.50.130C.2, shall be guilty of an infraction punishable by a fine not to exceed five hundred dollars.

9.50.140 Other applicable laws.

This chapter shall not be interpreted nor construed to permit smoking where it is otherwise restricted by other applicable laws.

9.50.150 Severability.

It is hereby declared to be the intention of the city council that the sections, paragraphs, sentences, clauses, and phrases of the ordinance are severable and if any section, paragraph, sentence, clause, or phrase shall be declared unconstitutional or otherwise invalid by a court of competent jurisdiction, such unconstitutionality or invalidity shall not affect any of the remaining sections, paragraphs, sentences, clauses or phrases herein.

Chapter 9.52

FIRE PREVENTION CODE*

9.52.010 Short title.

9.52.020 Adopted, Amended.

9.52.030 Chapter 1, Scope and Administration, Amended.

9.52.030.1 Section 103.1 General, Amended.

9.52.030.2 Section 103.1.1 Residential care homes, Added.

9.52.030.3 Section 104.13 Plan review and approval, Added.

9.52.030.4 Section 105.1.1.1 Payment required, Added.

9.52.030.5 Section 105.5 Required operational permits.

9.52.030.6 Section 105.6 Required construction permits, Amended.

9.52.030.7 Section 105.6.18.1 Private fire hydrant construction plans, Added.

9.52.030.8 Section 105.6.25 Access Control System, Added.

9.52.030.10 Section 107.7 Permits required, Added.

9.52.030.11 Section 107.8 Time limit of application, Added.

9.52.030.13 Section 108.5 Certificates of Occupancy, Added.

9.52.030.14 Section 109.2.1.1 Private fire hydrant test and inspection records, Added.

9.52.030.15 Section 109.2.1.2 Fire hydrant not operative, Added.

9.52.030.16 Section 111.1 Board of appeals established, Amended.

9.52.030.17 Section 112.4 Violation penalties, Amended.

9.52.030.18 Section 112.5 Citations, Added.

9.52.030.194 Section 113.4 Failure to comply, Amended.

9.52.040 Chapter 2, Definitions, Amended.

9.52.040.1 Section 202 General Definitions, Amended.

9.52.050 Chapter 3, General Requirements, Amended.

9.52.050.1 Section 310.1 General, Amended.

9.52.050.2 Section 311.7 Vacant Buildings Ordinance, Added.

9.52.050.3 Section 315.3.5 Aisles, Added.

9.52.050.4 Section 315.4 Outside storage, Amended.

9.52.050.5 Section 315.4.2 Height, Amended.

9.52.050.6 Section 315.4.3 Width, Added.

9.52.050.7 Section 319 Mobile Food Preparation Vehicles.

9.52.060 Chapter 4, Emergency Planning and Preparedness, Amended.

9.52.060.1 Section 408 Places of Assembly, Added.

9.52.070 Chapter 5, Fire Service Features, Amended.

9.52.070.1 Section 503.1.4 Facility yards, Added.

9.52.070.2 Section 505.1 Address identification, Amended.

9.52.070.3 Section 506.1.1.1 Electric Gate, Added.

9.52.070.4 Section 507.3.1 Minimum pressure requirement, Added.

9.52.070.5 Section 507.4.1 Flow test adjustments.

9.52.070.6 Section 507.5.1 Where required, Amended.

***Editor's note—**Ord. No. 019521, § 1, adopted July 5, 2023, repealed the former Ch. 52, §§ 9.52.010—9.52.220, and enacted a new Ch. 9.52 as set out herein. The former chapter pertained to similar subject matter and derived from Ord. No. 18969, adopted Sept. 3, 2019.

9.52.070.7 Section 507.5.5 Clear space around hydrants, Amended.

9.52.070.8 Section 507.5.7 Private fire hydrants, Added.

9.52.070.8.1 Section 507.5.7.1 DATV, Added.

9.52.070.9 Section 508.1.2 Separation, Amended.

9.52.070.10 Section 510 Emergency Responder Communication Coverage, Added.

9.52.080 Chapter 9, Fire Protection Systems, Amended.

9.52.080.1 Section 901.2.2 Supporting data, Added.

9.52.080.2 Section 901.4.3.1 Extending Sprinkler System Coverage, Added.

9.52.080.3 Section 903.2.8 Group R, Amended.

9.52.080.4 Section 903.2.10.3 Group S-2 Warehouses, Added.

9.52.080.5 Section 903.2.11.3 Buildings 55 feet or more in height, Amended.

9.52.080.7 Section 903.3.1.1.4 Hydrostatic Testing, Added.

9.52.080.8 Section 903.1.1.5 Acceptance Testing, Added.

9.52.080.10 Section 903.3.5.3 Freeze Protection, Added.

9.52.080.11 Section 903.4 Sprinkler System Supervision & Alarms, Amended.

9.52.080.12 Section 903.4.2 Alarms, amended.

9.52.080.14 Section 903.4.4 Multi-Tenant and Warehouse Buildings, Added.

9.52.080.15 Section 903.5.1 Underground Pipe, Added.

9.52.080.19 Section 903.7 Buildings with Multiple Risers, Added

9.52.080.20 Section 904.2.3 Alternative Automatic Fire Extinguishing Systems, Added.

9.52.080.21 Section 904.3.5.1 Single tenant building, Added.

9.52.080.22 Section 904.4.2.2 Alarm Notification, Added.

9.52.080.23 Section 904.10.4 Acceptance Testing, Added.

9.52.080.24 Section 904.13.2.1 Fire Alarm Control Panel (FACP) Interconnection, Added.

9.52.080.25 Section 905.2 Installation Standard for Standpipe Systems, Amended.

9.52.080.26 Section 905.3.9 Mega Structure Special Considerations, Added.

9.52.080.28 Section 905.8 Dry Standpipes, Amended.

9.52.080.29 Section 906.1 Where required, Amended.

9.52.080.30 Section 906.3.5 Minimum extinguisher requirements, Added.

9.52.080.31 Section 907.2 Where required-new buildings and structures, Amended.

9.52.080.32 Section 907.2.3.1 Portable Classrooms, Added.

9.52.080.33 Section 907.2.24 Mixed Use Buildings, Added.

9.52.080.34 Section 907.2.25 Multiple Buildings, Added.

9.52.080.35 Section 907.6.3 Initiating device identification, Amended.

9.52.080.37 Section 907.6.4.3 Zone Descriptions, Added.

9.52.080.38 Section 907.6.6 Monitoring, Amended.

9.52.080.39 Section 907.6.6.1.1 Dumb Dialers, Added.

9.52.080.40 Section 907.6.6.2.1 Monitor It Yourself (MIY) Revocation, Added.

9.52.080.41 Section 907.6.7 Fire alarm control panel electrical connection, Added.

9.52.080.42 Section 907.6.8 Annunciation location for sprinkler monitoring systems, Added.

9.52.080.44 Section 912.2.1.1 Distance and Accessibility, Added.

9.52.080.45 Section 912.2.1.2 Markings, Added.

9.52.080.46 Section 912.2.1.3 Pathway, Added.

9.52.080.47 Section 912.2.1.4 Shared fire line, Added.

9.52.080.48 Section 912.4.1 Locking fire department connection caps, Amended.

9.52.080.49 Section 912.6.1 Backflow protection device enclosures, Added.

9.52.080.50 Section 912.6.2 Freeze Protection, Added.

9.52.080.51 Section 913.2.3 Fire Pump Cavitation, Added.

9.52.080.54 Section 913.2.4 Fire Pump Power Supply Disconnect, Added.

9.52.080.55 Section 913.6 Jockey Pump Pressures, Added.

9.52.080.56 Section 913.7 Fire pump bypass, Added.

9.52.080.57 Section 913.8 Diesel fire pumps, Added.

9.52.080.58 Section 913.9 Low suction throttling valve, Added.

9.52.080.59 Section 915.2.3.1 Carbon Monoxide Annunciation in Group E Occupancies, Added.

9.52.090 Chapter 10, Means of Egress, Amended.

9.52.090.1 Section 1004.7 Outdoor areas, Amended.

9.52.090.3 Table 1020.2 Corridor Fire Resistance Rating, Amended.

9.52.100 Chapter 11, Construction Requirements for Existing Buildings, Amended.

9.52.100.1 Section 1103.2 Emergency responder communication coverage in existing buildings, amended.

9.52.110 Chapter 32, High-Piled Combustible Storage, Amended.

9.52.110.1 Section 3201.1.1 Purpose and Intent, Added.

9.52.110.2 Section 3201.1.2 Applicability, Added.

9.52.110.3 Section 3201.1.3 Effective date, Added.

9.52.110.4 Section 3201.1.4, Appeals, Added.

9.52.110.5 Section 3204.3 Water flow test data adjustment, Added.

9.52.110.6 Section 3206.1.1 Fire protection, Added.

9.52.110.7 Section 3206.7.4 Marking on fire department access doors, Amended.

9.52.120 Chapter 50, Hazardous Materials - General Provisions, Amended.

9.52.120.1 Section 5003.3.1.1 Records, Amended.

9.52.120.2 Section 5003.3.1.5 Response Expenses, Added.

9.52.120.3 Section 503.3.1.6 Local reporting requirements, Added.

9.52.120.4 Section 5006 Transportation of Hazardous Materials, Added.

9.52.130 Chapter 56, Explosives and Fireworks, Amended.

9.52.130.1 Section 5601.1.3 Fireworks, Amended.

9.52.130.2 Section 5601.2.4 Financial responsibility, Amended.

9.52.130.3 Section 5601.2.4.3 Indemnity agreement, Added.

9.52.130.4 Section 5601.6.1 Immediate Notification, Added.

9.52.130.5 Section 5601.7.1 Disposal of explosives, explosive materials or fireworks, Added.

9.52.130.6 Section 5608.2 Permit application, Amended.

9.52.130.7 Section 5608.2.3 Indoor displays, Added.

9.52.130.8 Section 5609.1 General, Amended.

9.52.130.9 Section 5610 Flame Effects, Added.

9.52.140 Chapter 57, Flammable and Combustible Liquids, Amended.

9.52.140.1 Section 5705.3.8.2 Location on property.

9.52.140.2 Section 5706.1.2 Restricted Locations, Added.

9.52.140.3 Section 5706.1.3 Designated Districts, Added.

9.52.140.4 Section 5706.5.4.5 Commercial, industrial, governmental or manufacturing, Amended.

9.52.140.5 Section 5706.5.1.11 Switch Loading, Amended.

9.52.140.6 Section 5706.6.1.3 Vehicle motor shutdown, Amended.

9.52.150 Chapter 61, Liquefied Petroleum Gas, Amended.

9.52.160 Appendix B, Fire-Flow Requirements for Buildings, Amended.

9.52.160.1 Section B105.4 Fire-Flow requirements for private fire hydrants, Added.

9.52.160.2 Section B105.5 Fire-Flow data, Added.

9.52.170 Appendix C, Fire Hydrant Locations and Distributions, Amended.

9.52.170.2 Section C102.1 Minimum number of fire hydrants for a building, Amended.

9.52.170.3 Table C102.1 Number and distribution of fire hydrants, amended.

9.52.170.1 Section C104.2 Existing private fire hydrants, Added.

9.52.180 Appendix D, Fire Apparatus Access Roads, Amended.

9.52.180.1 Section D101.2 Roadways governed by Subdivision Ordinance, Added.

9.52.180.2 Section D103.1 Access road width with a hydrant, Amended.

9.52.180.3 Section D103.1.1 Access road length with a hydrant, Added.

9.52.180.4 Section D103.1.1.1 Access road with hydrant access curbs, Added.

9.52.180.5 Section D103.1.1.1.1 Access road without hydrant access curbs, Added.

9.52.180.6 Section D103.2 Grade, Amended.

9.52.180.7 Section D103.4 Dead ends, Amended.

9.52.180.8 Table 103.4 Requirements for Dead-End Fire Apparatus Access Roads, Amended.

9.52.180.9 Section D103.5 Fire apparatus access road gates, Amended.

9.52.180.10 Section D103.6 Signs, Amended.

9.52.180.11 Figure D103.6 Fire Lane Signs, Amended.

9.52.180.12 Section D103.6.1 Roads 20 to 28 feet in width, Amended.

9.52.180.13 Section D103.6.2 Roads more than 28 feet in width, Amended.

9.52.180.14 Section D103.6.3 Responsibility, Added.

9.52.180.15 Section D103.6.4 Records, Added.

9.52.180.16 Section D103.7 Enforcement, Added.

9.52.190 Appendix E, Hazard Categories, Amended.

9.52.200 Appendix F, Hazard Ranking, Amended.

9.52.210 Appendix G, Cryogenic Fluids-Weight and Volume Equivalents, Amended.

9.52.220 Appendix I, Fire Protection Systems-Noncompliant Conditions, Amended.

9.52.230 Appendix N, Indoor Trade Show and Exhibitions, adopted.

9.52.240 Appendix O, Fee Schedule, Added.

9.52.010 Short title.

That this chapter may be cited as the "Fire Code".

9.52.020 Adopted, Amended.

A. That the book entitled "International Fire Code," 2021 Edition, a copy of which authenticated by the city clerk is on file in the city clerk's office, is hereby adopted as the Fire Code of the city, as if fully copied at length in this chapter, but with the amendments set forth in this chapter, to replace the 2015 Edition of the International Fire Code previously adopted by the city council.

B. That any references made in this chapter to "IFC" shall mean the 2021 International Fire Code.

C. That whenever reference is made in the 2021 International Fire Code, or any other referenced standard or code, to "the authority having jurisdiction," "fire marshal," or "fire code official" for enforcement of the provisions thereof, the term "AHJ" shall be substituted therefore, unless otherwise provided for in this chapter.

D. That the provisions in the 2021 International Fire Code are intended to be cumulative of other provisions and chapters of the El Paso City Code pertaining to fire prevention, unless otherwise expressly stated herein. To the extent that any provisions of the 2021 International Fire Code are in conflict with Title 18 of the City Building & Construction Code the most restrictive Code shall govern.

(Ord. No. 019521, § 1, 7-5-2023)

9.52.030 Chapter 1, Scope and Administration, Amended.

International Fire Code, 2021 Edition, Chapter 1, Scope and Administration, is hereby adopted in its entirety with the following amendments:

(Ord. No. 019521, § 1, 7-5-2023)

9.52.030.1 Section 103.1 General, Amended.

103.1 General.

The Fire Prevention Division is established within the fire department. The function of the division shall be the implementation, administration and enforcement of the provisions of this Chapter, or any other standard referenced within the El Paso City Code.

(Ord. No. 019521, § 1, 7-5-2023)

9.52.030.2 Section 103.1.1 Residential care homes, Added.

103.1.1 Residential care homes.

The AHJ may conduct fire inspections of residential care homes including adult and child day care homes, residential adult foster/boarding care, and child foster family homes, boarding homes, and lodging houses.

(Ord. No. 019521, § 1, 7-5-2023)

9.52.030.3 Section 104.13 Plan review and approval, Added.

104.13 Plan review and approval.

The AHJ shall examine or cause to be examined submitted plans and accompanying documents for evidence of compliance with the provisions of this Chapter. Plans shall be approved prior to the start of construction, or installation of any fire protection system. The submittal of plans for review does not constitute an authorization to proceed until the required permit is obtained.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.030.4 Section 105.1.1.1 Payment required, Added.

105.1.1.1 Payment required. A permit, although issued, shall not be valid until fees have been paid.

Exception: The City of El Paso, the County of El Paso, the El Paso Housing Authority, the State of Texas and the United States Government are exempted from payment of the permit fees required in this chapter; provided, that only such facilities as owned, operated and maintained by such governmental agencies shall be exempted from payment of such permit fees.

(Ord. No. 019521, § 1, 7-5-2023)

9.52.030.5 Section 105.5 Required operational permits.

105.5.22.1 Exempt materials, Added.

The following materials are specifically exempted from any of the permitting requirements in 105.5.22:

a. Inert gases, which do not support combustion, to include argon, helium, krypton, neon, xenon, compressed air, carbon dioxide, and nitrogen. These gasses are subject to regulation under Section 105.5.11 when stored as cryogenic fluids.

b. Any hazardous material that is handled, used, stored, or disposed of and is kept for non-commercial purposes at a private residence in Permissible Quantities.

c. Any material contained in a transportation vehicle when said vehicle is not being used for permanent hazardous materials storage.

d. Any material, which is held solely as a pharmaceutical product.

e. Any hazardous waste material in a hazardous waste management facility that is permitted by the State pursuant to 42 U.S.C. Section 6925; provided, however, such materials shall be listed in the permit application if one is otherwise required.

f. Radioactive material(s) regulated at the Federal or State level; provided, however, that such material(s) be listed in the permit application if one is otherwise required.

g. Any material to the extent it is used in Permissible Quantities in routine agricultural operations by the end user.

h. Commercial products kept in Permissible Quantities and used at a facility solely for janitorial purposes.

i. Any material in interstate transmission facilities or interstate pipeline facilities regulated by 49 U.S.C. Sec. 60101 et. seq. (1997) and any amendments thereto, and any materials in pipeline facilities regulated by Chapter 117 of the Natural Resources Code, Vernon's Ann. Civ. Stat., and any amendments thereto, or subject to Texas Railroad Commission Pipeline Safety Laws and Regulations, and any amendments thereto.

105.5.38 Outdoor assembly event, Amended.

No special event shall be conducted upon a public right-of-way unless a special event permit allowing such activity has been obtained pursuant to this Chapter.

105.5.44 Refrigeration equipment, Amended.

An operational permit is required to operate a mechanical refrigeration unit or system regulated by Chapter 6 of the IFC, and as amended by this Code, containing in excess of 20 pounds of refrigerant, other than air or water.

Exception: Air conditioning units or systems.

105.5.53 Blasting operations, Added.

An operational permit is required to conduct blasting operations. Requirements as set forth in Chapter 56 of the IFC, and as amended by Section 9.52.130 of this Chapter, must be met in order to obtain a blasting permit.

105.5.54 Commercial Day Care Facilities-Children, Added.

An operational permit is required for the operation of a commercial child day care facility.

105.5.55 For Use Permit, Added.

The AHJ may require an operational permit to be issued for any operation, process, special event, public display, or exhibit not specifically covered by this Fire Code when the AHJ deems such operation, process, special event, public display, or exhibit to be hazardous.

105.5.56 Outside Storage of Combustible Material Permit, Added.

Except for operations subject to 105.5.26, 105.5.30, and 105.5.46, an operational permit is required for facilities located at non-residential properties, where the Outside Storage of Combustible Material exists, in a quantity greater than de minimis, as defined in this Subsection.

105.5.56.1 Definitions, Added.

"Baled storage" means combustible material that has been placed in containers other than fully-enclosed containers approved by the Department or grouped together by use of metal or plastic bands for case in loading, transporting and storing in units.

"Combustible Material" means any material or solid waste that poses a significant fire hazard if ignited by a flame, spark, or any other source of ignition, will readily burn under such conditions, and includes, but is not limited to paper, cardboard, wood, plastics, rubber and fluff (as defined in this subchapter). Combustible Material shall not include non-solids, or explosives, as defined by Chapter 33 of the IFC.

"De minimis" means the Outside Storage of Combustible Material (as defined in this subchapter) of a total volume of less than seventy-five (75) cubic yards at a facility.

"Department" means the Fire Department of the City of El Paso, Texas.

"Fire response expense" means the supplies used or expended in responding to a fire emergency including the cost of water and water supplies, response equipment deemed no longer operative, and cost of labor.

"Fluff" means any material that is a by-product of the recycling process that includes but is not limited to, shredding operations, metals separation, compacting or transport operations.

"Loose storage" means the storage of combustible material that is neither baled nor enclosed in containers.

"Non-residential Property" means any property in a district other than a residential- or apartment-zoned district.

"Outside Storage" means storage of any Combustible Material not in a building or structure. Storage of Combustible Material in a fully-enclosed container approved by the Department shall not be considered Outside Storage.

"Pile" means any accumulation of Combustible Material in a heap or mound.

"Unit" means a separate and distinct aggregate of homogeneous stacks, bales, pallet storage units, containers and/or piles of Combustible Material.

105.5.56.2 Permit Application, Added.

The owner or a legally-authorized representative of the owner of a facility regulated by this ordinance shall complete and submit a permit application to the Department, in accordance with the following requirements:

A. An applicant shall submit to the Department an application for an Outside Storage of Combustible Material Permit upon exceeding the De Minimis volume of Combustible Material stored outside at the facility;

B. An applicant that holds a current, valid Outside Combustible Material Storage Permit shall submit a permit renewal application 60 days prior to the permit's expiration;

C. An applicant for an initial permit or permit renewal shall submit at a minimum, the following information, which shall be requested on the permit application form supplied by the Department:

1. Name and physical address of facility;

2. Name and mailing address of facility owner;

3. Name and mailing address of property owner;

4. Description of all Combustible Material stored outside;

5. Estimated quantity (volume) of Combustible Material stored outside;

6. Facility diagram indicating storage area locations for each Unit stored outside;

7. Method of storage for each Unit (baled or loose);

8. Proof of financial responsibility in accordance with Section 105.5.56.8 of this ordinance and as required by any other applicable ordinance; and,

9. The appropriate Tier 1 or Tier 2 permit fee in the amount set by City Council through its budget resolution or other duly adopted resolution.

D. If an owner or a legally-authorized representative of the owner of a facility regulated by this Section fails to submit to the Department an application required by this Section, said failure shall be considered a violation of this Section and shall be subject to the penalties described in Section 9.52.030.17.

105.5.56.3 Issuance, Term and Denial of Permit, Added.

A. The Department shall review all permit applications submitted in accordance with Section 105.5.56.2 and,

B. Within 60 days of a permit renewal or new permit application submitted in accordance with Subsection 105.5.56.2, the Department shall issue a permit renewal or a new permit which, unless revoked, shall be valid for a period of twelve (12) calendar months to the applicant; or

C. The Department shall deny the application in writing and shall inform the applicant of any deficiencies of the permit application if the permit application was incomplete; or

D. Within 30 days of a permit application for a previously revoked permit, the Department shall deny the application in writing if the revocation period of twelve (12) months has not yet elapsed.

105.5.56.4 Revocation of Permit, Added.

The Department may revoke, for a period of up to twelve (12) calendar months from date of written notification, an Outside Storage of Combustible Material Permit issued to an owner or a legally authorized representative of the owner of a facility if one of the following conditions occur:

A. Applicant has supplied the Department false, incorrect or misleading information on an application for permit renewal or new permit;

B. More than two (2) written notices of violation of this Section resulting from inspections by the AHJ have been issued within a period of twelve (12) months to a holder of a current, valid permit; or

C. During or immediately following a fire at a permitted facility, a violation of this Section has occurred and has been documented by the AHJ.

105.5.56.5 Right to Appeal Permit Revocation, Added.

The right to appeal a permit revocation is provided in the City Fire Prevention Code 9.52.030.16 Section 111.1 Board of Appeals and in accordance with Chapter 2.30 of the City Code.

105.5.56.6 Permit Requirements, Added.

A. Tier 1. For facilities that maintain no more than one (1) Unit of loose storage and/or no more than one (1) Unit of baled storage, the following requirements shall be met:

1. A facility fire plan, subject to approval by the AHJ, that includes: a description of all Combustible Material at the facility and the manner in which it is stored, routes of facility evacuation for employees, fire awareness and prevention orientation training for facility employees, site plan indicating fixed structures, Units and fire extinguisher locations, a facility fire alarm system, and a description of security measures to restrict public access to Combustible Material stored outside;

2. A minimum of one (1) type 2A20BC fire extinguisher per Unit, with a distance of no more than 50 feet between the extinguisher and the closest point of the Unit;

3. A minimum of one (1) type 2A20BC fire extinguisher mounted on each vehicle used to manage, load, or move Combustible Material;

4. Installation of a security measure to restrict public access to Combustible Material stored outside by use of a physical barrier, such as a fence or wall, in accordance with applicable zoning ordinance(s);

5. Two mandatory inspections by the department annually no less than three (3) months apart;

6. Payment of Outside Storage of Combustible Material Permit Tier 1 permit fee in the amount set by City Council through its budget resolution or other duly adopted resolution; and

7. Proof of Financial Responsibility for the facility, in the principal sum of $1,000,000.00 and in accordance with Subsection 105.5.56.8 of this ordinance.

B. Tier 2. For facilities that maintain more than one (1) Unit of loose storage, more than two (2) Units of baled storage, or any combination of more than two (2) Units of loose or baled storage, the following requirements shall be met:

1. Provisions 1—5, permit requirements for Tier 1;

2. Payment of Outside Storage of Combustible Material Permit Tier 2 permit fee in the amount set by City Council through its budget resolution or other duly adopted resolution; and

3. Proof of Financial Responsibility for the facility, in the principal sum of $2,000,000.00 and in accordance with Subsection 105.5.56.8 of this ordinance.

105.5.56.7 Storage, Added.

Combustible Material stored outside shall be maintained in accordance with the following requirements:

A. Any array of combustible material whether baled or loose storage:

1. Unit height shall not exceed twelve (12) feet;

2. Unit footprint shall not exceed a perimeter measurement of three hundred (300) feet;

3. A buffer zone shall be established between each Unit and the physical barrier indicated in the permit application of at least twenty (20) feet; and

4. A storage separation space shall be established between individual Units of Combustible Material of at least twenty (20) feet.

B. Storage Separation Space and Fire Safety Buffer Zone:

1. No storage of Combustible Material shall be allowed within the buffer zone or in the storage separation space described in this Subsection. In addition, said buffer zone and storage separation space must at all times be kept free and clear of equipment, material and/or accumulation of waste.

2. A reduction to ten (10) feet for the fire safety buffer zone, as described in the immediately preceding paragraph, may be allowed at a facility where Combustible Material is stored in containers approved by the Department.

3. A reduction of the storage separation space may be allowed where the Combustible Material is stored in containers approved by the Department.

105.5.56.8 Financial Responsibility, Added.

A. Insurance. No permit applicant shall be issued a permit until the applicant presents evidence satisfactory to the AHJ that the applicant meets the following minimum insurance requirements:

1. The applicant shall procure and shall maintain during the term of the permit such public liability insurance naming the permittee performing work associated with the permit as insured, co-insured or additionally insured for claims for damages for personal injury, including accidental death, as well as for claim for property damage that may arise from outside storage of combustible material associated with the facility identified on the permit.

2. Minimum limits of liability and coverage shall be $1,000,000.00 for a Tier 1 Permit or $2,000,000.00, for a Tier 2 Permit, for each occurrence and in the aggregate. Permit applicants that are governmental entities may comply with the insurance requirements of this Subsection by providing certification that they are self-insured.

3. Such insurance shall be written by an accredited insurance company under the supervision of the Board of Insurance Commissioners of the State of Texas. Evidence of compliance with these insurance requirements shall be considered as having been met when a copy of the insurance policy or a certificate of insurance has been filed with and approved by the AHJ. Such policy shall include an endorsement that the City is named as an additional insured to the full amount of the policy limits and that the AHJ shall be notified at least thirty (30) days in advance in the event the policy or policies are canceled and ten (10) days in advance for non-payment of policy premiums. The certificate of insurance shall recite or attach such endorsement for additional insured and the notice requirements. The permitee shall maintain said insurance with a solvent insurance company authorized to do business in Texas. The policy shall provide that the insurer will defend against all claims and lawsuits which arise and will pay any final judgment of a court of competent jurisdiction against the City, its officers, agents, servants or employees, and permittee, his officers, agents, servants or employees. Failure to keep the insurance policy in full force and effect throughout the term of the permit shall be grounds for permit revocation.

4. A permit applicant who has provided certificates of insurance to the City pursuant to the requirements of a Chapter of the City Code other than this Subchapter that meet all of the requirements established in this Subchapter shall not be required to obtain an additional insurance but is required to provide such certificates of insurance showing present coverage as required in this Subchapter. A permittee who has multiple permits under this Chapter is required to provide only one current valid certificate of insurance for all such permits but may be required to provide a copy of the current certificate of insurance with each application under this Subchapter.

105.5.56.9 Nontransferable, Added.

Permits issued under this chapter shall be personal to the permittee, and shall not be assigned or transferred to any other person or entity.

105.5.56.10 Response Expenses, Added.

Any person, persons, or business entity operating under an Outside Storage of Combustible Materials Permit where a fire event has occurred, shall be jointly and severally liable to the City for fire response expenses resulting from such fire event.

(Ord. No. 019521, § 1, 7-5-2023; Ord. No. 019704, §§ 1—4, 1-7-2025)

9.52.030.6 Section 105.6 Required construction permits, Amended.

105.6 Required construction permits.

Where required, application for construction permit shall be made to the building official in accordance with Section 105 of the International Building Code and Title 18, Chapter 18.08 (Building Code) of the El Paso City Code.

(Ord. No. 019521, § 1, 7-5-2023)

9.52.030.7 Section 105.6.18.1 Private fire hydrant construction plans, Added.

105.6.18.1 Private fire hydrant construction plans.

Private fire hydrant construction plans. Private fire hydrant construction plans shall be submitted by a Texas licensed fire protection contractor or a Texas licensed master plumber.

(Ord. No. 019521, § 1, 7-5-2023)

9.52.030.8 Section 105.6.25 Access Control System, Added.

105.6.25 Access Control System Permit.

A permit shall be required for the installation of an access control system in a building that has a fire alarm control panel.

(Ord. No. 019521, § 1, 7-5-2023)

9.52.030.10 Section 107.7 Permits required, Added.

107.7 Permits required.

Permits and licenses required by this Fire Code shall be obtained from the AHJ. Permit and license fees, as required in accordance with the schedule as established by the applicable governing au-

thority, shall be paid to the City prior to issuance of the permit or license. This fee is charged to pay part of the expense of enforcing this section. Any person commencing work or performing any action requiring a permit under this Fire Code without first obtaining the necessary permit shall be subject to a fee of 300% of the scheduled permit fee in addition to the scheduled permit fee and other penalties set forth in Section 112 of this Fire Code. Issued permits shall be kept on the premises designated therein at all times and shall be readily available for inspection by the AHJ.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.030.11 Section 107.8 Time limit of application, Added.

Section 107.8 Time limitation of application.

An application for an operational permit for any proposed work or operation shall be deemed to have been abandoned if all applicable fees are not paid in full within 30 days after the date of signing of the permit application.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.030.13 Section 108.5 Certificates of Occupancy, Added.

108.5 Certificates of Occupancy, Added.

The building owner, or an occupant, or other person having charge or control of a building, structure or premises or their duly authorized agent shall have a valid certificate of occupancy available for review, upon request by the fire code official conducting an official inspection of a building, structure or premises. Failure to provide a valid certificate of occupancy upon request to the fire code official shall result in the denial of the issuance of an operational permit by the fire code official, unless the building existed prior to November 23, 1955 and has not been structurally altered or experienced a change in use since November 23, 1955.

108.5.1, Added.

Except as provided in Ordinance No. 1448 and other applicable law, it shall be a violation of this title if a building owner or an occupant or other person having charge or control of a building, structure or premises does not obtain a certificate of occupancy from the building official.

108.5.2, Added.

In accordance with applicable law, the fire code official shall be authorized to take immediate action when life safety issues require such action.

108.5.3, Added.

The provisions of this Subsection 9.52.030.13, including a determination that a certificate of occupancy is not required because the building existed prior to November 23, 1955 and has not been structurally altered or experienced a change in use since November 23, 1955, shall be subject to the appeal process referenced in local amendment 111.1 of Subsection 9.52.030.16 of the City Code.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.030.14 Section 109.2.1.1 Private fire hydrant test and inspection records, Added.

109.2.1.1 Private fire hydrant test and inspection records.

Private fire hydrant test and inspection records shall be filed with the AHJ within two working days from the private hydrant's date of test/inspection.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.030.15 Section 109.2.1.2 Fire hydrant not operative, Added.

109.2.1.2 Private fire hydrant not operative.

If a private fire hydrant is not operative and is not repaired at the time of its test/inspection. the hydrant's condition must be reported to the AHJ immediately.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.030.16 Section 111.1 Board of appeals established, Amended.

1.1.1 Appeals.

Appeals of orders, decisions or determinations by the AHJ relative to the application and

interpretation of Fire Code may be appealed to the Appeals Officer in accordance with Chapter 2.30 of the City Code.
(Ord. No. 019521, § 1, 7-5-2023; Ord. No. 019758, § 1, 7-22-2025)

9.52.030.17 Section 112.4 Violation penalties, Amended.

112.4 Violation penalties.

Persons who shall violate a provision of this Fire Code or shall fail to comply with any of the requirements thereof or who shall erect, install, alter, repair or do work in violation of the approved construction documents or directive of the AHJ, or of a permit or certificate used under provisions of this Fire Code, shall be guilty of a misdemeanor, punishable by a fine of not more than two thousand dollars. Each day that a violation continues after due notice has been served shall be deemed a separate offense.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.030.18 Section 112.5 Citations, Added.

112.5 Citations.

The AHJ shall have the authority to issue citations for violations of provisions of this Fire Code.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.030.194 Section 113.4 Failure to comply, Amended.

113.4 Failure to comply.

Any person who shall continue any work after having been served with a stop work order, except such work as that person is directed to perform to remove a violation or unsafe condition, shall be liable for a fine of not more than two thousand dollars. Each day that a violation continues after due notice has been served shall be deemed a separate offense.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.040 Chapter 2, Definitions, Amended.

International Fire Code, 2021 Edition, Chapter 2, Definitions, is hereby adopted in its entirety with the following amendments:
(Ord. No. 019521, § 1, 7-5-2023)

9.52.040.1 Section 202 General Definitions, Amended.

The following definitions are added to those already included in Section 202 of the 2021 International Fire Code or amend those definitions already in the section.

"Adult Foster Care (AFC) Home" means a home that provides supervised, 24-hour living arrangements for people who are unable to continue living independently in their own homes because of a physical, mental or emotional limitation.

"Alter or Alteration" means any change or modification in construction or occupancy.

"Authority Having Jurisdiction (AHJ)" means an organization, office, or individual responsible for enforcing the requirements of a code or standard, or for approving equipment, materials, an installation, or a procedure.

"Building Official" means where the term "Building Official" is used within the fire prevention code and this chapter, it shall have the same meaning as set forth in Section 18.02.102.2 of the El Paso City Code.

"Dry pipe valve" A dry standpipe system normally filled with pressurized air that is arranged through the use of a device, such as a dry pipe valve, to admit water into the system piping automatically upon the opening of a hose valve. The water supply of the automatic dry standpipe system shall not be required to be capable of supplying the system demand.

"Environment" means any surface water, groundwater, drinking water supply, land surface or subsurface strata, or ambient air within or under the control of the United States.

"Fire Barrier" means a fire-resistance-rated wall assembly of materials permanently fixed in place designed to restrict the spread of fire in which continuity is maintained.

"Fire District" means a heavily populated or congested commercial area as described in Chapter 18.08 of the City Code, also known as the 'limits established by law'.

"Flame Effects" means the combustion of solid, liquid, or gas, designed specifically to produce an open flame when ignited to display a thermal, physical, visual, or audible phenomena as defined in NFPA 160. Such devices include paraffin wax candles. LP gas candles, torches, LP-gas burners, and 'sky lantern' type flame illuminated aerial devices and cold spark machines.

"Foster Family Home" means a home that is the primary residence of the foster parents and provides care for six of fewer children or young adults, under the regulation of a child-placing agency.

"Fuel Oil" Kerosene or any hydrocarbon oil having a flash point not less than 100 F (38 C).

"Jurisdictional Area" means an area within the City limits of the City.

"Repair Garage" means a building, structure, or portion thereof used for servicing, or repairing motor vehicles, or a building, structure, or portion thereof used for installation of aftermarket parts and accessories on motor vehicles.

"Vacant" has the same meaning as defined by Chapter 18.40 (Vacant Buildings) of the El Paso City Code.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.050 Chapter 3, General Requirements, Amended.

International Fire Code, 2021 Edition, Chapter 3, Scope and Administration, is hereby adopted in its entirety with the following amendments:
(Ord. No. 019521, § 1, 7-5-2023)

9.52.050.1 Section 310.1 General, Amended.

310.1 General.

Refer to Chapter 9.50 of the City Code.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.050.2 Section 311.7 Vacant Buildings Ordinance, Added.

311.7 Vacant Buildings Ordinance.

Vacant premises shall also comply with the provisions of Chapter 18.40 (Vacant Buildings) of the City Code.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.050.3 Section 315.3.5 Aisles, Added.

315.3.5 Aisles.

In areas where miscellaneous combustible materials are stored, an aisle of at least 30 inches in width shall be provided for every 50 linear feet of piles, palletized, racked, or bin storage.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.050.4 Section 315.4 Outside storage, Amended.

315.4 Outside storage.

Outside storage, including but not limited to pile storage of combustible materials, shall not be located within 10 feet of a property line, building, and or structure. Outside storage, including pile storage shall be maintained from an existing fence line a minimum distance equal to the height of the material stored.

Exceptions:

1. The separation distance to a property line is allowed to be reduced to 3 feet for storage not exceeding 6 feet in height.

2. The separation distance to a property line is allowed to be reduced when the AHJ determines that no hazard to the adjoining property exists.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.050.5 Section 315.4.2 Height, Amended.

315.4.2 Height.

Storage in the open, including but not limited to pile storage, shall not exceed 20 feet in height.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.050.6 Section 315.4.3 Width, Added.

315.4.3 Width.

A minimum of 20 feet width separation between all outside storage, including but not limited to, pile storage, shall be provided.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.050.7 Section 319 Mobile Food Preparation Vehicles.

319 Mobile Food Preparation Vehicles, Added.

Beginning Calendar Year 2025 all permitted mobile food preparation vehicles as defined by the 2021 International Fire (IFC) will have to meet all the following requirements.

319.1 General. Mobile food preparation vehicles that are equipped with appliances that produce smoke or grease laden vapors shall comply with this section.

319.2 Permit required. Permits shall be required as set forth in Section 105.5.

319.3 Exhaust hood. Cooking equipment that produces grease-laden vapors shall be provided with a kitchen exhaust hood in accordance with Section 606.

319.4 Fire protection, amended.

Fire protection shall be provided in accordance with Section 319.4.1.

319.4.1 Fire extinguisher.

Portable fire extinguishers shall be provided in accordance with Section 906.4.

319.5 Appliance connection to fuel supply piping.

Gas cooking appliances shall be secured in place and connected to fuel-supply piping with an appliance connector complying with ANSI Z21.69/CSA 6.16. The connector installation shall be configured in accordance with the manufacturer's installation instructions. Movement of appliances shall be limited by restraining devices installed in accordance with the connector and appliance manufacturer's instructions.

319.6 Cooking oil storage containers.

Cooking oil storage containers within mobile food preparation vehicles shall have a maximum aggregate volume not more than 120 gallons (454 L), and shall be stored in such a way as to not be toppled or damaged during transport

319.7 Cooking oil storage tanks.

Cooking oil storage tanks within mobile food preparation vehicles shall comply with Sections 319.7.1 through 319.7.5.2.

319.7.1 Metallic storage tanks.

Metallic cooking oil storage tanks shall be listed in accordance with UL 80 or UL 142, and shall be installed in accordance with the tank manufacturer's instructions.

319.7.2 Nonmetallic storage tanks.

Nonmetallic cooking oil storage tanks shall be installed in accordance with the tank manufacturer's instructions and shall comply with both of the following:

1. Tanks shall be listed for use with cooking oil, including maximum temperature to which the tank will be exposed during use.

2. Tank capacity shall not exceed 200 gallons (757L) per tank.

319.7.3 Cooking oil storage system components.

Metallic and nonmetallic cooking oil storage system components shall include, but are not limited to, piping, connections, fittings, valves, tubing, hose, pumps, vents and other related components used for the transfer of cooking oil.

319.7.4 Design criteria.

The design, fabrication and assembly of system components shall be suitable for the working pressures, temperatures and structural stresses to be encountered by the components.

319.7.5 Tank venting.

Normal and emergency venting shall be provided for cooking oil storage tanks.

319.7.5.1 Normal vents.

Normal vents shall be located above the maximum normal liquid line, and shall have a minimum effective area not smaller than the largest filling or withdrawal connection. Normal vents are not required to vent to the exterior.

319.7.5.2 Emergency vents.

Emergency relief vents shall be located above the maximum normal liquid line, and shall be in the form of a device or devices that will relieve excessive internal pressure caused by an exposure fire. For nonmetallic tanks, the emergency relief vent shall be allowed to be in the form of construction. Emergency vents are not required to discharge to the exterior.

319.8 LP-gas systems.

Where LP-gas systems provide fuel for cooking appliances, such systems shall comply with Chapter 61 and Sections 319.8.1 through 319.8.5.

319.8.1 Maximum aggregate volume.

The maximum aggregate capacity of LP-gas containers transported on the vehicle and used to fuel cooking appliances only shall not exceed 200 pounds (91 kg) propane capacity.

319.8.2 Protection of container.

LP-gas containers installed on the vehicle shall be securely mounted and restrained to prevent movement.

319.8.3 LP-gas container construction.

LP-gas containers shall be manufactured in compliance with the requirements of NFPA 58.

319.8.4 Protection of system piping.

LP-gas system piping, including valves and fittings, shall be adequately protected to prevent tampering, impact damage, and damage from vibration.

319.8.5 LP-gas alarms.

A listed LP-gas alarm shall be installed within the vehicle in the vicinity of LP-gas system components, in accordance with the manufacturer's instructions.

319.9 CNG systems.

Where CNG systems provide fuel for cooking appliances, such systems shall comply with Sections 319.9.1 through 319.9.4.

319.9.1 CNG containers supplying only cooking fuel.

CNG containers installed solely to provide fuel for cooking purposes shall be in accordance with Sections 319.9.1.1 through 319.9.1.3.

319.9.1.1 Maximum aggregate volume.

The maximum aggregate capacity of CNG containers transported on the vehicle shall not exceed 1,300 pounds (590 kg) water capacity.

319.9.1.2 Protection of container.

CNG containers shall be securely mounted and restrained to prevent movement. Containers shall not be installed in locations subject to a direct vehicle impact.

319.9.1.3 CNG container construction.

CNG containers shall be an NGV-2 cylinder.

319.9.2 CNG containers supplying transportation and cooking fuel.

Where CNG containers and systems are used to supply fuel for cooking purposes in addition to being used for transportation fuel, the installation shall be in accordance with NFPA 52.

319.9.3 Protection of system piping.

CNG system piping, including valves and fittings, shall be adequately protected to prevent tampering, impact damage and damage from vibration.

319.9.4 Methane alarms.

A listed methane gas alarm shall be installed within the vehicle in accordance with manufacturer's instructions.

319.10 Maintenance.

Maintenance of systems on mobile food preparation vehicles shall be in accordance with Section 319.10.1.

319.10.1 Exhaust system.

The exhaust system, including hood, grease-removal devices, fans, ducts and other appurtenances, shall be inspected and cleaned in accordance with Section 606.3.

319.10.2 Fire Protection systems and devices.

Fire protection systems and devices shall be maintained in accordance with Section 901.6.

319.10.3 Fuel gas systems.

LP-gas containers installed on the vehicle and fuel-gas piping systems shall be inspected annually by an approved inspection agency or a company that is registered with the US Department of Transportation to requalify LP-gas cylinders, to ensure that system components are free from damage, suitable for the intended service and not subject to leaking. CNG containers shall be inspected every 3 years in a qualified service facility. CNG containers shall not be used past their expiration date as listed on the manufacturer's container label. Upon satisfactory inspection, the approved inspection agency shall affix a tag on the fuel gas system or within the vehicle indicating the name of the inspection agency and the date of satisfactory inspection.

(Ord. No. 019521, § 1, 7-5-2023)

9.52.060 Chapter 4, Emergency Planning and Preparedness, Amended.

International Fire Code, 2021 Edition, Chapter 4, Emergency Planning and Preparedness, is hereby adopted in its entirety with the following amendments:
(Ord. No. 019521, § 1, 7-5-2023)

9.52.060.1 Section 408 Places of Assembly, Added.

408 Places of Assembly.

408.1 Overcrowding in Places of Assembly, Added.

The number of persons in any building or portion thereof shall not exceed the amount permitted in accordance with the Building Code or Fire Code. The owner, supervisor or manager responsible for admitting persons shall be responsible for keeping an accurate occupant count at all times during business hours. In places of assembly with a capacity of 100 or more persons, the occupant count shall be kept in written form and made readily available to AHJ or his authorized representative upon request or at each 30-minute intervals.

408.2 Authority of AHJ in overcrowded conditions, Added.

No person shall permit overcrowding or admittance of any person beyond the approved capacity of any place of assembly. The AHJ, upon finding any overcrowded conditions or obstructions in aisles, passageways or other means of egress, or upon finding any conditions which constitutes a threat to life safety, shall cause the performance, presentation, spectacle or entertainment to be stopped until such condition or obstruction is corrected.

408.3 Offense for allowing overcrowding, Added.

Any owner, supervisor or manager who shall admit persons in excess of the occupant capacity set by the AHJ shall be guilty of a misdemeanor offense punishable by a fine as provided in the City Code. Each person admitted or ticket sold in excess of such number shall constitute a separate offense.

408.4 Failure to comply, Added.

For failure to comply herewith, the AHJ may, in the name of the City, apply to a court of competent jurisdiction for an injunction to compel compliance. Failure to comply with this subsection shall make the person so failing, and any person by whom he was employed at the time he failed to comply, subject to the enforcement provisions of Section 112 of the IFC and Section 9.52.030.194 of the City Code, and he or she shall in addition show cause, if any exists, why he or she should not be eligible for a permit for two (2) years after the date of violation. These penalties are in addition to any criminal penalties provided for by this chapter.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.070 Chapter 5, Fire Service Features, Amended.

International Fire Code, 2021 Edition, Chapter 5, Fire Service Features, is hereby adopted in its entirety with the following amendments:
(Ord. No. 019521, § 1, 7-5-2023)

9.52.070.1 Section 503.1.4 Facility yards, Added.

503.1.4 Facility yards.

An approved fire apparatus access road shall be provided to within 150 feet of all outside combustible/flammable materials storage, including but not limited to pile storage, located in automobile wrecking yards, junkyards, recycling facilities, or wrecking yards.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.070.2 Section 505.1 Address identification, Amended.

505.1 Address Numbers.

New and existing buildings shall be numbered in accordance with Title 18 of the City Code.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.070.3 Section 506.1.1.1 Electric Gate, Added.

506.1.1.1 Electric Gate.

An approved electric Knox Switch shall be installed on electric access gates where required by the AHJ.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.070.4 Section 507.3.1 Minimum pressure requirement, Added.

507.3.1 Minimum pressure requirement.

When the water supply system is intended to provide firefighting capability, the water supply system must also be designed to maintain a minimum pressure of 20 psi under combined fire and drinking water flow conditions pursuant to 30 Tex. Admin. Code Section 290.46(r).
(Ord. No. 019521, § 1, 7-5-2023)

9.52.070.5 Section 507.4.1 Flow test adjustments.

507.4.1 Flow Test Adjustments, Added.

Water flow test data shall be adjusted to account for daily and seasonal fluctuations, large simultaneous industrial use, future demand on water supply, or any other condition that could affect the water supply. The fire protection system design shall be based on not more than 90% of the water flow test data. The water flow test data shall only be valid if the required data is obtained within five (5) years from the date plans are submitted to the AHJ.

507.4.2 System Water Demand Verification, Added.

Backflow forward flow test shall be performed by the contractor and witnessed by the Fire Marshal inspector to verify water demand calculations submitted by the system designer.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.070.6 Section 507.5.1 Where required, Amended.

507.5.1 Where Required.

Where a portion of the facility or building hereafter constructed or moved into or within the jurisdiction is more than 800 feet from a hydrant on a fire apparatus access road, as measured by an approved route around the exterior of the facility or building, on-site fire hydrants and mains shall be provided where required by the AHJ.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.070.7 Section 507.5.5 Clear space around hydrants, Amended.

507.5.5 Clear space around hydrants.

A 5-foot clear space shall be maintained around the circumference of fire hydrants, except as otherwise required or approved.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.070.8 Section 507.5.7 Private fire hydrants, Added.

507.5.7 Private fire hydrants.

All private fire hydrants shall comply with the current EPWU hydrant installation specifications.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.070.8.1 Section 507.5.7.1 DATV, Added.

507.5.7.1 DATV.

Installation of a Davidson Anti-Terrorism Valve is optional on a private fire hydrant.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.070.9 Section 508.1.2 Separation, Amended.

508.1.2 Separation.

The fire command center shall be separated from the remainder of the building by not less than a 1-hour fire-resistance-rated fire barrier constructed in accordance with Section 707 of the International Building Code or horizontal assembly constructed in accordance with Section 711 of the International Building Code, or both. No openings shall be permitted between the fire command center and the building being protected.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.070.10 Section 510 Emergency Responder Communication Coverage, Added.

510.1 Emergency Responder Communication Coverage in new buildings, Amended.

Approved in-building, two-way emergency responder communication coverage for emergency responders shall be provided in all new buildings. In-building, two-way emergency responder communication coverage within the building shall be based on the existing coverage levels of the public safety communication systems utilized by the jurisdiction, measured at the exterior of the building. This section shall not require improvement of the existing public safety communication systems.

Exceptions:

1. Where approved by the building official and the fire code official, a wired communication system in accordance with Section 907.2.13.2 shall be permitted to be installed or maintained instead of an approved radio coverage system.

2. Where it is determined by the fire code official that the radio coverage system is not needed.

3. In facilities where emergency responder radio coverage is required and such systems, components or equipment required could have a negative impact on the normal operations of that facility, the fire code official shall have the authority to accept an automatically activated emergency responder radio coverage system.

4. Section 510 of the International Fire Code shall not apply to buildings less than 40,000 square feet or any single-family detached residential dwelling or multifamily building or structure less than 40,000 square feet or any building under four stories with less than 40,000 square feet per floor.

510.2 Emergency responder communication coverage in existing buildings, Amended.

Communications coverage in existing buildings will continue to be evaluated based on the square footage of the building and any identified communications failures.

(Ord. No. 019521, § 1, 7-5-2023)

9.52.080 Chapter 9, Fire Protection Systems, Amended.

International Fire Code, 2021 Edition, Chapter 9, Fire Protection Systems, is hereby adopted in its entirety with the following amendments:

(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.1 Section 901.2.2 Supporting data, Added.

901.2.2 Supporting data.

The supporting data in the form of hydraulic calculations required by AHJ for installation or modification of all fire suppression systems shall be valid if the flow test data is within 5 years from the date plans are submitted.

(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.2 Section 901.4.3.1 Extending Sprinkler System Coverage, Added.

901.4.3.1 Extending Sprinkler System Coverage.

When a sprinkler system is installed inside a shell building, all tenant improvements that take place inside the shell building are required to have a sprinkler system modification that meets the current NFPA 13 standards.

(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.3 Section 903.2.8 Group R, Amended.

9.03.2.8. An automatic sprinkler system installed in accordance with IFC Section 903.3 shall be provided throughout all buildings with a Group R fire area. For Group R-2 occupancies, an automatic sprinkler system shall be provided throughout all floors of buildings with a Group R-2 fire area where more than two stories in height, including basements, or where having more than 16 dwelling units.

Exceptions:

1. Group R-1, where guestrooms are not more than three stories above the lowest level of exit discharge and each guestroom has at least one door leading directly to an exterior exit access that leads directly to approved exits.

2. A residential sprinkler system installed in accordance with Section 903.3.1.2 shall be allowed in buildings, or portions thereof, of Group R-1.

3. Detached one- and two-family dwellings and multiple single-family dwellings (townhouses) not more than three stories above grade plane in height with a separate means of egress, and their

accessory structures not more than three stories above grade plane in height conforming with the provisions of the International Residential Code.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.4 Section 903.2.10.3 Group S-2 Warehouses, Added.

903.2.10.3 Group S-2 Warehouses.

An automatic sprinkler system shall be provided in accordance with Section 903.3.1.1 throughout a Group S-2 warehouse when the S-2 warehouse fire area exceeds 12,000 square feet.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.5 Section 903.2.11.3 Buildings 55 feet or more in height, Amended.

903.2.11.3 Buildings 35 feet or more in height.

An automatic sprinkler system shall be installed throughout buildings that have one or more stories with an occupant load of 30 or more, located 35 feet or more above the lowest level of fire department vehicle access, measured to the finished floor.

Exception: Occupancies in Group F-2.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.7 Section 903.3.1.1.4 Hydrostatic Testing, Added.

903.3.1.1.4 Hydrostatic Testing.

A Hydrostatic test at 200 psi is required when more than 20 Mechanical Ts or when new pipe is installed.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.8 Section 903.1.1.5 Acceptance Testing, Added.

903.3.1.1.5 Acceptance Testing.

For all new or reconfigured high pile storage warehouses (HPSW), a rack storage array inspection will be conducted after the rack system has been installed in a HPSW. This is to verify that the racks are positioned for proper sprinkler coverage.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.10 Section 903.3.5.3 Freeze Protection, Added.

903.3.5.3 Freeze Protection.

Where aboveground water-filled supply pipes, risers, system risers, or feed mains for a fire protection system pass through areas subject to temperatures below 40 degrees Fahrenheit, the pipe shall be protected from freezing by a listed method.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.11 Section 903.4 Sprinkler System Supervision & Alarms, Amended.

903.4 Sprinkler System Supervision & Alarms.

Valves controlling the water supply for automatic sprinkler systems, pumps, tanks, water levels and temperatures, critical air pressure, underground gate valves, and water flow switches on all sprinkler systems shall be electrically supervised by a listed fire alarm control unit or as approved by the authority having jurisdiction.

Exceptions:

1. Automatic sprinkler systems protecting one- and two-family dwellings.

2. Limited area sprinkler systems installed in accordance with Section 903.3.8.

3. Automatic sprinkler systems installed in accordance with NFPA 13R where a common supply main is used to supply both domestic water and the automatic sprinkler system and a separate shutoff valve for the automatic sprinkler is not provided.

4. Jockey pump control valves that are sealed or locked in the open position.

5. Control valves to commercial kitchen hoods, paint spray booths or dip tanks that are sealed or locked in the open position.

6. Valves controlling the fuel supply to fire pump engines that are sealed or locked in the open position.

7. Trim valves to pressure switches in dry, preaction and deluge sprinkler systems that are sealed or locked in the open position.

8. Underground key or hub gate valves in roadway boxes
(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.12 Section 903.4.2 Alarms, amended.

903.4.2 Alarms.

An approved audible device, located on the exterior and interior of the building in an approved location, shall be connected to each automatic sprinkler system. Such sprinkler water flow alarm devices shall be activated by water flow equivalent to the flow of a single sprinkler of the smallest orifice size installed in the system. Where a fire alarm system is installed, actuation of the automatic sprinkler system shall actuate the building fire alarm system.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.14 Section 903.4.4 Multi-Tenant and Warehouse Buildings, Added.

903.4.4.1 Multi-Tenant Buildings, Added.

In buildings requiring sprinkler systems with multiple tenants, where no fire alarm is required, each tenant will have the minimum of one notification device (horn/strobe) to provide audio and visual notification upon activation of the monitoring alarm system, in a location approved by the AHJ.

903.4.4.2 Warehouse buildings (S1/S2) Office Areas, Added.

In warehouse buildings requiring sprinkler systems, where no fire alarm is required, a notification device shall be provided in normally occupied office areas. One device per office area if more than one office area exists and-or one device per level of office area if more than one level exists. Notification devices shall also be provided in storage areas where audio and visual notification would be evident within those areas.

903.4.4.3 Warehouse Buildings (S1/S2) Storage Areas, Added.

In warehouse buildings requiring sprinkler systems and where no fire alarm is required. notification devices shall be provided in storage areas spaced at 3 times the distance required for a full notification system (triple spaced between devices).
(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.15 Section 903.5.1 Underground Pipe, Added.

903.5.1 Underground Pipe.

All underground fire line pipe not installed by EPWU shall be hydrostatically tested per NFPA 13 and NFPA 24 requirements.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.19 Section 903.7 Buildings with Multiple Risers, Added

903.7 Buildings with Multiple Risers.

When a building is served by multiple sprinkler system risers, all of the risers shall be served by a manifold system. If the risers are not served by a manifold system, the separate systems boundaries must be clear and able to be described by the addressable fire alarm system.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.20 Section 904.2.3 Alternative Automatic Fire Extinguishing Systems, Added.

904.2.3 Alternative Automatic Fire Extinguishing Systems.

Fire Extinguishing Systems installed in lieu of a sprinkler system in areas where occupants will be incapacitated (ex: Hyperbaric Facilities) shall use an extinguishing agent which supports life.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.21 Section 904.3.5.1 Single tenant building, Added.

904.3.5.1 Single tenant building.

In a single tenant building, where sprinkler monitoring is installed in accordance with 903.4.1, automatic fire-extinguishing systems shall be connected to sprinkler monitoring and a notification device (horn strobe) shall be placed in or near the space protected by the automatic fire-extinguishing system at a location approved by the AHJ.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.22 Section 904.4.2.2 Alarm Notification, Added.

904.4.2.2 Alarm Notification.

A notification appliance is required exclusive for annunciation of the hood suppression system. A bell that is interconnected to the hood suppression system shall be used.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.23 Section 904.10.4 Acceptance Testing, Added.

904.10.4 Acceptance Testing.

As part of the Acceptance Test for all clean agent systems, a door fan test is required to be witnessed and verified by the fire code official that it meets the standard specified in NFPA 2001.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.24 Section 904.13.2.1 Fire Alarm Control Panel (FACP) Interconnection, Added.

904.13.2.1 Fire alarm Control Panel (FACP) Interconnection.

The automatic fire extinguishing system for commercial cooking systems shall be interconnected to a FACP where a FACP is installed in the building.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.25 Section 905.2 Installation Standard for Standpipe Systems, Amended.

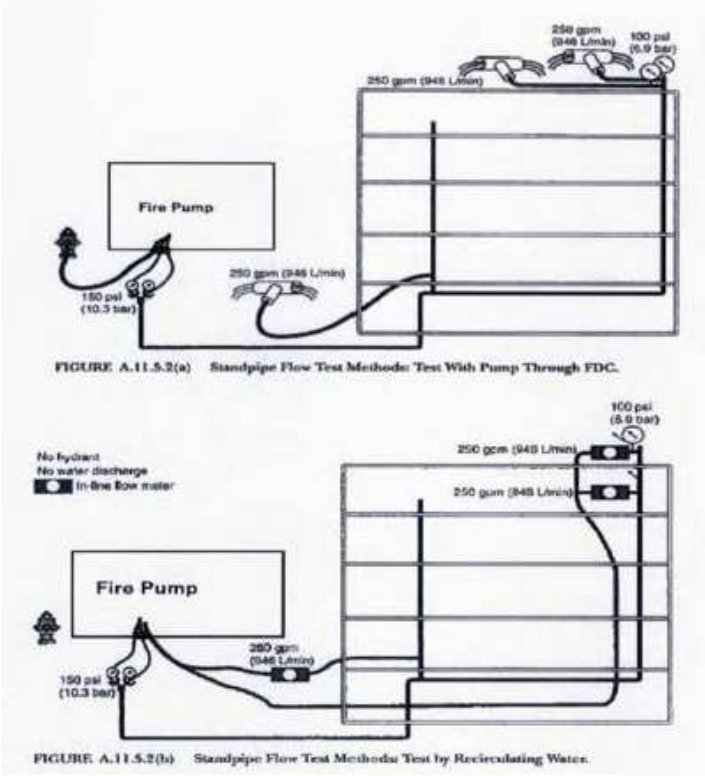
905.2.1 Installation Standard for Automatic Standpipe Systems, Added.

NFPA 14 11.5.1 Automatic Standpipe Flow Test/Hydraulic Verification Methods shall be field performed to confirm hydraulic design by way of methods outlined in 7.10.1 Class I and Class III Systems.

905.2.2 Installation Standard for Manual Standpipe Systems, Added.

NFPA 14 11.5.2 Manual Standpipe Flow Test/ Hydraulic Verification Methods as depicted in Figure A.11.5.2(a) or Figure A.11.5.2(b) shall be done prior to system final. Contractor under FSYS permit shall be responsible for obtaining their own pump capable of flowing the required gpm and at the required pressure for the system.

Figure A.11.5.2(a) and Figure A.11.5.2(b)



(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.26 Section 905.3.9 Mega Structure Special Considerations, Added.

905.3.9 Mega Structure Special Considerations.

All buildings that exceed exit travel distance of 300 ft. require a Class I Standpipe system with hose connections. A hose connection shall be provided within 200 ft. of all portions of the building. The distance between each hose connection shall not exceed 400 feet. The hose connections are required to be cross-zoned or on a dedicated standpipe system. A water-flow of 250 gpm at a pressure of 100 psi is required at the most remote hose connection. An acceptance test is required to verify the flow and pressure.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.28 Section 905.8 Dry Standpipes, Amended.

905.8 Dry Standpipes, Amended.

A dry pipe valve standpipe system is required for all standpipe systems that are subject to freezing where an automatic dry standpipe system or a semiautomatic dry system is not required. The dry pipe valve must be installed in a conditioned space. Refer to Dry Pipe Valve in definitions.

Exception: Dry standpipes shall be allowed in parking garages where it is subject to freezing.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.29 Section 906.1 Where required, Amended.

Section 906.1 Where required.

Portable fire extinguishers shall be installed in all of the following locations:

1. In new and existing Group A, B, E, F, H, I, M, R-1, R-2, R-4 and S occupancies.

Exceptions:

1. In Group R-2 occupancies, portable fire extinguishers shall be required only in locations

specified in Items 2 through 6 where each dwelling unit is provided with a portable fire extinguisher having a minimum rating of 2-A:10-B:C.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.30 Section 906.3.5 Minimum extinguisher requirements, Added.

906.3.5 Minimum extinguisher requirements.

Each individual occupancy shall have, at a minimum, one 2A10BC extinguisher for every 3000 square feet, or fraction thereof for Light (low) and Ordinary (moderate) hazard occupancies. Greater protection may be required depending on the nature of the hazard, whereas Table 906.3(1) shall be used.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.31 Section 907.2 Where required- new buildings and structures, Amended.

907.2 Where required-new buildings and structures.

An approved fire alarm system installed in accordance with the provisions of this code and NFPA 72 shall be provided in new buildings and structures in accordance with Sections 907.2.1 through 907.2.25 and provide occupant notification in accordance with Section 907.5, unless other requirements are provided by another section of this code.

Not fewer than one manual fire alarm box shall be provided in an approved location to initiate a fire alarm signal for fire alarm systems employing automatic fire detectors or waterflow detection devices. Where other sections of this code allow elimination of fire alarm boxes due to sprinklers, a single fire alarm box shall be installed at the main office or at a location where there is an employee or attendant present. If there is no main office or interior main entrance, it may be installed in the riser room.

Exceptions:

1. The manual fire alarm box is not required for fire alarm systems dedicated to elevator recall control and supervisory service.

(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.32 Section 907.2.3.1 Portable Classrooms, Added.

907.2.3.1 Portable Classrooms.

In addition to the required notification devices, a manual fire alarm box that initiates the occupant notification signal shall be installed in portable classrooms when a manual fire alarm system is installed on the campus as per Section 907.2.3.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.33 Section 907.2.24 Mixed Use Buildings, Added.

907.2.24 Mixed Use Buildings.

In mixed use buildings, not classified as high-rise, provided with a sprinkler monitoring system or fire alarm system as required elsewhere in this Fire Code or El Paso City Code, all notification devices shall activate upon alarm activation.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.34 Section 907.2.25 Multiple Buildings, Added.

907.2.25 Multiple Buildings.

For properties where multiple buildings exist and where a fire alarm system or a sprinkler monitoring system has been installed in these properties, a separate FACP is required where the main address differs in each building or set of buildings. Each panel must transmit their own fire alarm signals directly to Central Station.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.35 Section 907.6.3 Initiating device identification, Amended.

The fire alarm system shall identify the specific initiating device address, location, device type, floor level where applicable and status including indication of normal, alarm, trouble and supervisory status, as appropriate.

Exception: Fire alarm systems in single-story buildings less than 22,500 square feet in area and not classified E occupancy.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.37 Section 907.6.4.3 Zone Descriptions, Added.

907.6.4.3 Zone Descriptions.

When a conventional fire alarm panel is installed, the FACP shall be programmed with zone descriptions for all configured zones regardless of square footage. The length of any zone shall not exceed 300 feet (91.44m) in any direction.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.38 Section 907.6.6 Monitoring, Amended.

907.6.6 Monitoring.

Fire alarm systems required by this chapter or by the International Building Code shall be monitored by an approved supervising station in accordance with NFPA 72. Monitoring and reporting by the supervising station shall identify the specific initiating device address, location, device type, floor level where applicable for alarm, trouble and supervisory status, as appropriate.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.39 Section 907.6.6.1.1 Dumb Dialers, Added.

907.6.6.1.1 Dumb Dialers.

Dry contact communication dialers for FACP's are not allowed.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.40 Section 907.6.6.2.1 Monitor It Yourself (MIY) Revocation, Added.

907.6.6.2.1 MIY Revocation.

The fire code official may revoke the permission to use MIY transmitters to Public Safety Answering Points (PSAP) if these systems do not function properly or if the PSAP call takers are not proficient in using this system. Permission to use this type of system may be revoked after 5 failed tests within a year. The inability to read the fire alarm descriptions or the inability to receive a signal on a timely manner (within 5 minutes) will constitute a failed test.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.41 Section 907.6.7 Fire alarm control panel electrical connection, Added.

907.6.7 Fire alarm control panel electrical connection.

Fire alarm control panels (FACP) that will serve multiple tenants are required to be connected to the building electrical house panel.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.42 Section 907.6.8 Annunciation location for sprinkler monitoring systems, Added.

907.6.8 Annunciation location for sprinkler monitoring systems.

Where a sprinkler monitoring system is installed, the annunciation location needs to meet the same requirements as the annunciation location for a fire alarm system. (This will allow the FACP or a standalone annunciator to be located at a readily accessible location for fire department access)
(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.44 Section 912.2.1.1 Distance and Accessibility, Added.

912.2.1.1 Distance and Accessibility.

The fire department connection shall be placed no further than 30 feet from an approved fire access road, shall not be obstructed and topography shall be such that it will be readily accessible to fire department personnel.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.45 Section 912.2.1.2 Markings, Added.

912.2.1.2 Markings.

The curb immediately adjacent to the fire department connection shall be painted red. If no curb is provided, a six-inch minimum red stripe shall be painted on the pavement immediately adjacent to the FDC. The painted curb or stripe shall measure 10 feet. The pavement immediately adjacent to the painted curb or stripe, shall be hash marked in red paint and extend out a minimum of 10 feet or as designated by the AHJ.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.46 Section 912.2.1.3 Pathway, Added.

912.2.1.3 Pathway.

An unobstructed, level surface no less than 36 inches wide shall be provided from the fire department connection to the nearest point of the fire department access road.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.47 Section 912.2.1.4 Shared fire line, Added.

912.2.1.4 Shared fire line.

Where a fire protection system is supplied by the same fire line as a private fire hydrant, the fire department connection for that system shall be connected to the fire protection system above the check valve.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.48 Section 912.4.1 Locking fire department connection caps, Amended.

912.4.1 Locking fire department connection caps.

Locking caps on fire department connections for water-based fire protection systems where the responding fire department carries appropriate key wrenches for removal will be required after the effective date of this ordinance. Occupancies will have 2 years to comply with this section.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.49 Section 912.6.1 Backflow protection device enclosures, Added.

912.6.1 Backflow protection device enclosures ASSE 1060 hot box.

A backflow protection device shall provide freeze protection by means of an outdoor enclosure. The enclosure must meet ASSE 1060 Class 1 requirements for freeze protection. Existing backflow protection devices that do not meet this requirement will have 2 years to comply.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.50 Section 912.6.2 Freeze Protection, Added.

912.6.2 Freeze Protection.

Where aboveground water-filled supply pipes, risers, system risers, feed mains or branch lines for a fire protection system pass through areas subject to temperatures below 40 degrees Fahrenheit, the pipe shall be protected from freezing by a listed method.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.51 Section 913.2.3 Fire Pump Cavitation, Added.

913.2.3 Fire Pump Cavitation Protection.

The use of low suction pressure controls shall be used for fire pumps where the intake pressure drops below 30 psi when the fire pump is flowing at 150% at rated capacity, or when the underground is shared with a private hydrant(s).
(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.54 Section 913.2.4 Fire Pump Power Supply Disconnect, Added.

913.2.4 Fire Pump Power Supply Disconnect.

A Mandatory Fire Pump power supply disconnect is required for all fire pump controllers. This disconnect shall not be located in the fire pump room and will be approved by the AHJ. Markings for the disconnecting means shall be in accordance with article 695.4 of the National Electrical Code (NEC).
(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.55 Section 913.6 Jockey Pump Pressures, Added.

913.6 Jockey Pump Pressures.

Jockey pump pressures that serve a fire pump, for new or existing buildings, are not allowed to be artificially set low. Any existing building where this condition exists has up to 1 year to provide an NFPA 13 and NFPA 20 code compliant solution and corrective action for this deficiency.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.56 Section 913.7 Fire pump bypass, Added.

913.7 Fire pump bypass.

Fire pump bypass piping shall be installed for all fire pump installations when connected to a pressurized water source such as a municipal water supply or pressurized private source.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.57 Section 913.8 Diesel fire pumps, Added.

913.8 Diesel Fire Pumps.

The installation of diesel fire pumps shall not be allowed unless approved by the fire code official.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.58 Section 913.9 Low suction throttling valve, Added.

913.9 Low Suction Throttling Valve.

A low suction throttling valve shall be installed and comply with sections 913.9.1 and 913.9.2.

913.9.1 Private fire hydrant.

A low suction throttling valve shall be installed for all fire pump installations that contain a fire hydrant on the private service main shared by both systems.

913.9.2 Suction pressure below 30 psi.

A low suction throttling valve shall be installed for all fire pump installations where the suction pressure falls below 30 psi when flowing the most demanding required fire flow of the sprinkler system, standpipe system, or private hydrant.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.080.59 Section 915.2.3.1 Carbon Monoxide Annunciation in Group E Occupancies, Added.

915.2.3.1 Carbon Monoxide Annunciation in Group E Occupancies.

Carbon monoxide detection shall be installed in classrooms in Group E occupancies. Carbon monoxide alarm signals shall be automatically transmitted through a Fire Alarm Control Panel annunciator or a Carbon Monoxide Detection Panel annunciator to an on-site location that is staffed by school personnel. A supervisory signal shall be initiated and the signal shall also be transmitted to a Central Station monitoring service. In addition, a local audible alarm with the CO temporal code shall be annunciated in the room of origin.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.090 Chapter 10, Means of Egress, Amended.

International Fire Code, 2021 Edition, Chapter 10, Means of Egress, is hereby adopted in its entirety with the following amendments:
(Ord. No. 019521, § 1, 7-5-2023)

9.52.090.1 Section 1004.7 Outdoor areas, Amended.

1004.7. Outdoor areas.

Yards, patios, occupied roofs, courts and similar outdoor areas accessible to and usable by the building occupants shall be provided with means of egress as required by this chapter. The occupant load of such outdoor areas shall be assigned by the AHJ in accordance with the anticipated use. Where outdoor areas are to be used by persons in addition to the occupants of the building, and the path of egress travel from the outdoor areas passes through the building, means of egress requirements for the building shall be based on the sum of the occupant loads of the building plus the outdoor areas.

Exceptions:

1. Outdoor areas used exclusively for service of the building need only have one means of egress.

2. Both outdoor areas associated with Group R-3 and individual dwelling units of Group R-2.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.090.3 Table 1020.2 Corridor Fire Resistance Rating, Amended.

Table 1020.2 Corridor Fire-Resistance Rating

[BE] TABLE 1020.2 CORRIDOR FIRE-RESISTANCE RATING			
OCCUPANCY	OCCUPANT LOAD SERVED BY CORRIDOR	REQUIRED FIRE-RESISTANCE RATING (hours)	
		Without sprinkler system	With sprinkler system
H-1, H-2, H-3	All	Not Permitted	1[c]
H-4, H-5	Greater than 30	Not Permitted	1[c]
A, B, E, F, M, S, U	Greater than 30	1	0
R	Greater than 10	Not Permitted	0.5[c]/1[d]
I-2[a]	All	Not Permitted	0
I-1, I-3	All	Not Permitted	1[b, c]
I-4	All	1	0

a. For requirements for occupancies in Group I-2, see Sections 407.2 and 407.3 of the International Building Code.

b. For a reduction in the fire-resistance rating for occupancies in Group I-3, see Section 408.8 of the International Building Code.

c. Buildings equipped throughout with an automatic sprinkler system in accordance with Section 903.3.1.1 or 903.3.1.2 where allowed.

d. Group R-3 and R-4 buildings equipped throughout with an automatic sprinkler system in accordance with Section 903.3.1.3. See Section 903.2.8 for occupancies where automatic sprinkler systems are permitted in accordance with Section 903.3.1.3.

e. For R occupancies with Corridor Occupant Load greater than 10, a 1-hour fire-resistance rating shall be permitted without sprinkler system.

(Ord. No. 019521, § 1, 7-5-2023)

9.52.100 Chapter 11, Construction Requirements for Existing Buildings, Amended.

International Fire Code, 2021 Edition, Chapter 11, Construction Requirements for Existing Buildings, is hereby adopted in its entirety with the following amendments:

(Ord. No. 019521, § 1, 7-5-2023)

9.52.100.1 Section 1103.2 Emergency responder communication coverage in existing buildings, amended.

1103.2 Emergency responder communication coverage in existing buildings. Communications coverage in existing buildings will continue to be evaluated based on the square footage of the building and any identified communications failures.

(Ord. No. 019521, § 1, 7-5-2023)

9.52.110 Chapter 32, High-Piled Combustible Storage, Amended.

International Fire Code, 2021 Edition, Chapter 32, High-Piled Combustible Storage, is hereby adopted in its entirely with the following amendments:

(Ord. No. 019521, § 1, 7-5-2023)

9.52.110.1 Section 3201.1.1 Purpose and Intent, Added.

3201.1.1 Purpose and intent. The City Council hereby finds, as a matter directly affecting public safety, protection of property, and the life safety of personnel involved in fire suppression activities, that all existing buildings used for high-piled combustible storage must comply with IFC Chapter 32, as amended.

(Ord. No. 019521, § 1, 7-5-2023)

9.52.110.2 Section 3201.1.2 Applicability, Added.

3201.1.2 Applicability.

The provisions of IFC Chapter 32, as amended, shall apply to all existing buildings used for high-piled combustible storage, on or after December 8, 1998, regardless of the date of construction or prior issuance of a Certificate of Occupancy for that building.

(Ord. No. 019521, § 1, 7-5-2023)

9.52.110.3 Section 3201.1.3 Effective date, Added.

3201.1.3 Effective date.

After the effective date, it shall be unlawful for any person, firm, or corporation to use, or permit the use, of any building, structure, or portion thereof, for high-piled combustible storage which does not fully comply with the requirements of IFC Chapter 32, as amended.

(Ord. No. 019521, § 1, 7-5-2023)

9.52.110.4 Section 3201.1.4, Appeals, Added.

3201.1.4 Appeals.

The owner of a building or an owner's duly authorized agent may appeal a decision of the Fire Code Official or the Building Official related to this Section. All appeals shall be directed to the Appeals Officer, in accordance with Chapters 2.30 and 18.02 of the El Paso City Code.

(Ord. No. 019521, § 1, 7-5-2023; Ord. No. 019758, § 2, 7-22-2025)

9.52.110.5 Section 3204.3 Water flow test data adjustment, Added.

3204.3 Water flow test data adjustment.

The water flow test data shall be adjusted by the system designer to account for daily and seasonal fluctuations, large simultaneous industrial use, and future demand on the water supply system, or any other condition that could affect the water supply. The fire protection system design shall be based on not more than 90% of the water flow test data.

(Ord. No. 019521, § 1, 7-5-2023)

9.52.110.6 Section 3206.1.1 Fire protection, Added.

3206.1.1 Fire protection.

All existing buildings used for high-piled combustible storage must comply with the fire protection systems requirements identified in IFC Table 3206.2 and the current adopted International Building Code, (IBC), as amended.

(Ord. No. 019521, § 1, 7-5-2023)

9.52.110.7 Section 3206.7.4 Marking on fire department access doors, Amended.

3206.7.4 Marking on fire department access doors.

Fire department access doors shall comply with 2021 IFC Section 509.1. Fire department access doors shall be plainly marked with the words, "Fire Access Door" in red letters at least 6 inches high with a one-half inch stroke on a white background.

(Ord. No. 019521, § 1, 7-5-2023)

9.52.120 Chapter 50, Hazardous Materials - General Provisions, Amended.

International Fire Code, 2021 Edition, Chapter 50, Hazardous Materials-General Provisions, is hereby adopted in its entirety with the following amendments:

(Ord. No. 019521, § 1, 7-5-2023)

9.52.120.1 Section 5003.3.1.1 Records, Amended.

5003.3.1.1 Records.

Any person, firm, or corporation responsible for any unauthorized discharge reportable under subsection 5003.3.1.6 shall maintain accurate records of the unauthorized discharge of hazardous materials including the date, time, material, and quantities. Such records shall be kept for at least three years from the date of the unauthorized discharge, and shall be subject to inspection by the AHJ upon request. Any person who knowingly falsifies or destroys such records shall be in violation of this Fire Code.

(Ord. No. 019521, § 1, 7-5-2023)

9.52.120.2 Section 5003.3.1.5 Response Expenses, Added.

5003.3.1.5 Response Expenses.

Any person or persons causing or responsible for an abandonment or an unauthorized discharge or threatened unauthorized discharge of hazardous materials resulting in emergency action, other than routine investigation by the fire department, the department of environmental services, or any other City department, shall be jointly and severally liable to the City for its reasonably and necessarily incurred expenses, as defined below, resulting from such emergency action. Hazardous materials response expenses are defined as those non-reusable materials and supplies which are required for responding to hazardous materials emergencies and which are actually expended in an emergency action. Hazardous materials response expenses are defined to also include reusable response equipment which is required for responding to hazardous materials emergencies and which is rendered non-reusable during an emergency action due to damage other than by wear and tear. Hazardous materials response expenses shall include all labor costs, to include but not be limited to overtime expenditures, necessary to mitigate the emergency action. Hazardous materials responses are not considered to be routine firefighting services. Hazardous materials response expenses shall not include routine firefighting services.

(Ord. No. 019521, § 1, 7-5-2023)

9.52.120.3 Section 503.3.1.6 Local reporting requirements, Added.

5003.3.1.6 Local reporting requirements.

The AHJ shall be immediately notified by the person, firm or corporation responsible when an unauthorized discharge within the City limit boundaries or within the City's extra territorial jurisdictional boundaries becomes reportable under state, or federal laws or as follows:

a. Any unauthorized discharge of a hazardous material which presents an endangerment to public health, public welfare, or the environment, or any unauthorized discharge of a flammable or combustible material which presents a fire hazard, or any unauthorized discharge of any hazardous material or exposure that results in an injury requiring transport to an off-site medical facility.

b. The person who has care, custody or control of property, materials or equipment shall promptly notify the AHJ by calling 911 immediately upon discovery of an unauthorized discharge of any hazardous material reportable under subsection 5003.3.1.6a above. Immediate notification as required in this section shall be performed prior to or concurrently with necessary initial response actions, but under no conditions shall notification be delayed unnecessarily. At the time of notification, the following information shall be provided:

1) What is the location of the incident?

2) Has there been a fire or explosion?

3) Is anyone sick or injured?

4) What is the chemical name or identity of any material involved in the release, if known?

5) If chemical name is unknown are any diamond shaped or other markings visible on the vehicle or container? (colors / names / numbers / symbols)

6) What type of vehicle or container is involved?

7) What is an estimate of the quantity of material that was released?

8) What was the time and duration of the release?

9) Is there any smoke or vapor cloud visible, audible sounds or unusual odor?

10) The name and telephone number of the person or persons to be contacted for further information.

(Ord. No. 019521, § 1, 7-5-2023)

9.52.120.4 Section 5006 Transportation of Hazardous Materials, Added.

5006 Transportation of Hazardous Materials.

5006.1 Standing or parking.

It is unlawful for a motor carrier or operator to allow motor vehicles used to transport hazard-

ous materials to stand or park on any street, alley or lot within the limits of the City, except as provided for in accordance with Section 5706.6.2 of this Fire Code.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.130 Chapter 56, Explosives and Fireworks, Amended.

International Fire Code, 2021 Edition, Chapter 56, Explosives and Fireworks, is hereby adopted in its entirety with the following amendments:
(Ord. No. 019521, § 1, 7-5-2023)

9.52.130.1 Section 5601.1.3 Fireworks, Amended.

5601.1.3 Fireworks.

Fireworks are declared to be a nuisance. No person shall manufacture, sell or use fireworks within the City limits of El Paso except as provided in Section 9.52.030.5 (Required operational permits, as amended).

Exception: The use of fireworks for fireworks displays as allowed in Section 5608.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.130.2 Section 5601.2.4 Financial responsibility, Amended.

5601.2.4 Financial responsibility.

Before a permit is issued, as required by Section 5601.2, the applicant shall file with the jurisdiction a corporate surety bond in the principal sum of $1,000,000 or a public liability insurance policy for the same amount, for the purpose of the payment of all damages to persons or property which arise from, or are caused by, the conduct of any act authorized by the permit upon which any judicial judgment results. The AHJ is authorized to specify a greater or lesser amount when, in his or her opinion, conditions at the location of use indicate a greater or lesser amount is required. Government entities shall be exempt from this bond requirement. The City shall be named as an additional insured on the insurance policy or an additional obligee under the corporate surety bond, at no cost to the City. A bond required by this section must be executed by a corporate surety and approved by the AHJ. If applicable, an insurance policy shall be written by an accredited insurance company under the supervision of the Board of Insurance of the state. Evidence of compliance with this requirement shall be considered as having been met when the policy, a copy thereof, or a certificate of insurance has been filed with and approved by the AHJ. Such policy shall include an endorsement that the AHJ shall be notified at least thirty (30) days in advance in the event the policy or policies are canceled.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.130.3 Section 5601.2.4.3 Indemnity agreement, Added.

5601.2.4.3 Indemnity agreement.

The applicant shall be required to enter into an indemnity agreement with the City indemnifying the City and any of its agents or employees, for any personal injury, property damage or other civil liability whatsoever, caused by an activity, condition or event arising out of any act performed under the permit.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.130.4 Section 5601.6.1 Immediate Notification, Added.

5601.6.1 Immediate Notification.

In case of mechanical failure or traffic accident involving any conveyance carrying explosives, the AHJ and the police department shall be notified immediately.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.130.5 Section 5601.7.1 Disposal of explosives, explosive materials or fireworks, Added.

5601.7.1 Disposal of explosives, explosive materials or fireworks.

The City may file a motion with municipal court requesting an Order of Disposal and/or Destruction for explosives, explosive materials and/or fireworks pursuant to authority granted by the

2021 International Fire Code, Section 5601.7. Said Motion shall be filed with a sworn affidavit of the AHJ staling the underlying circumstances of the seizure and the City shall verify that the explosives, explosive materials and/or fireworks are not being held as evidence to be used in any pending case. A hearing shall be held before a judge of the El Paso municipal court. A judge shall, as soon as practicable, hear the matter, after giving reasonable notice to the AHJ and the person whose explosives, explosive materials and/or fireworks have been removed or impounded. The AHJ and the person whose explosives, explosive materials and/or fireworks have been removed or impounded shall each have the opportunity to present evidence and make argument on their behalf. The formal rules of evidence do not apply to a hearing under this section.

The judge hearing the case shall make his or her ruling on the basis of a preponderance of the evidence presented at the hearing. If the judge finds that the explosives, explosive materials and/or fireworks were lawfully seized and that, at the time of the hearing, the explosives, explosive materials and/or fireworks constitute materials or other items that cannot be lawfully possessed, stored, handled or used in the jurisdictional limits of the City, the judge shall grant the motion, The decision of the judge is final.

(Ord. No. 019521, § 1, 7-5-2023)

9.52.130.6 Section 5608.2 Permit application, Amended.

5608.2 Permit application.

Application for permits shall be made in writing to the AHJ at least 10 days in advance of the date of display. Prior to issuing permits for a fireworks display, plans for the fireworks display, inspection of the display site and demonstrations of the display operations shall be approved. A plan establishing procedure to follow and actions to be taken in the event of that a shell fails to ignite or discharge from a mortar or fails to function over the fallout area or other malfunctions shall be provided to the AHJ.

(Ord. No. 019521, § 1, 7-5-2023)

9.52.130.7 Section 5608.2.3 Indoor displays, Added.

5608.2.3 Indoor displays.

Personnel shall be provided to implement a standby fire watch acceptable to the AHJ if pyrotechnics are used inside a building.

(Ord. No. 019521, § 1, 7-5-2023)

9.52.130.8 Section 5609.1 General, Amended.

5609.1 General.

Temporary storage of consumer fireworks, 1.4G, is not allowed.

(Ord. No. 019521, § 1, 7-5-2023)

9.52.130.9 Section 5610 Flame Effects, Added.

5610 Flame Effects.

5610.1 General.

The use of flame effects for entertainment, exhibition, demonstration, or simulation must comply with NFPA 160. Flame effects deemed as such by the AHJ which could include and limited to LP gas candles and burners must comply with the NFPA 160 edition in use by the Texas Railroad Commission.

5610.2 Permit application.

Prior to issuing permits for flame effects, plans for the exhibition, inspections of the exhibition site, and demonstrations of the flame effects shall be approved by the AHJ.

5610.3 Indoor use or outdoor use, Added.

Personnel shall be provided to implement a standby fire watch acceptable to the AHJ if flame effects (as defined by the AHJ) are used indoors or outdoors.

5610.4 Financial Responsibility.

Before a permit is issued for any flame effects exhibition, the applicant must provide evidence of financial responsibility as set forth in Section 5601.2.4.

5610.5 Texas Flame Effects operator's license required.

At least one Texas Flame Effects licensee must be present on-site at all times where flame effects are used, discharged or ignited.

(Ord. No. 019521, § 1, 7-5-2023)

9.52.140 Chapter 57, Flammable and Combustible Liquids, Amended.

International Fire Code, 2021 Edition, Chapter 57, Flammable and Combustible Liquids, is hereby adopted in its entirety with the following amendments:
(Ord. No. 019521, § 1, 7-5-2023)

9.52.140.1 Section 5705.3.8.2 Location on property.

Dispensing activities that exceed the quantities set forth in Table 5705.3.8.2 shall not be conducted within 15 feet (4572 mm) of buildings or combustible materials or within 25 feet (7620 mm) of building openings, lot lines, public streets, public alleys or public ways. Dispensing activities that exceed the quantities set forth in Table 5705.3.8.2 shall not be conducted within 15 feet (4572 mm) of storage of Class I, II or III liquids unless such liquids are stored in tanks that are listed and labeled as 2-hour protected tank assemblies in accordance with UL 2085.

Exceptions:

1. The requirements shall not apply to areas where only the following are dispensed: Class III liquids; liquids that are heavier than water; water-miscible liquids; and liquids with viscosities greater than 10,000 centipoise (cp) (10 Pa x s).

2. Flammable and combustible liquid dispensing in refineries, chemical plants, process facilities, gas and crude oil production facilities and oil-blending and packaging facilities, terminals and bulk plants.

3. Mobile fueling dispensing activities shall not be conducted within 30 feet of buildings, building openings, combustible materials, lot lines, public alleys or public ways.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.140.2 Section 5706.1.2 Restricted Locations, Added.

5706.1.2 Restricted Locations.

It is unlawful for any individual, firm, partnership or corporation within the City limits, to install, enlarge or operate a bulk oil station, refinery, or distilling plant, except when such places conform in location and construction and maintain distances and safeguards as hereinafter specified. All storage of oils and gasoline in Classes I and II for the purpose of refining, or distilling or jobbing, or wholesaling, and handled by motor vehicles for delivery, must be installed within the below specified districts, as hereafter designated.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.140.3 Section 5706.1.3 Designated Districts, Added.

5706.1.3 Designated Districts.

The districts in which refineries, wholesale oil stations, or bulk stations may be located are described as follows:

1. Beginning at the intersection of Texaco Road and the north line of Southern Pacific Railroad tracks; thence westerly along the railroad tracks to the east line of Clark Road, thence north along the east line of Clark Road to the south line of Welch Avenue; thence easterly along the south line of Welch Avenue to the south line of Tampa Avenue; thence east along the south line of Tampa Avenue to the west line of the Western Refining South Plant; thence northerly along the west line of Western Refining South Plant to the west line of the Western Refining North Plant; thence northerly along the west line of the Western Refining North Plant to the south line of Gateway Boulevard East; thence easterly along the south line of Gateway Boulevard East to the east line of Airway Boulevard; thence northerly along the east line of Airway Boulevard to the south line of Viscount Boulevard; thence easterly along the south line of Viscount Boulevard to the east line of the Trans Mountain Oil Co.; thence southerly along the east line of the Trans Mountain Oil Co. to the north line of Gateway Boulevard West; thence westerly along the north line of Gateway Boulevard West to the east line of Airway Boulevard; thence south along the east line of Airway Boulevard to the south line of Gateway Boulevard East; thence easterly along Gateway Boulevard East to the east line of Hawkins Road; thence southerly along the

east line of Hawkins Road to the east line of Freeport-McMoran; thence southerly along the east line of Freeport-McMoran to the south line of Freeport-McMoran; thence westerly along the south line of Freeport-McMoran to the east line of Western Refining North spur track; thence southerly along the east line of the spur track to the north line of Southern Pacific Railroad track; thence westerly along the north line of Southern Pacific Railroad tracks to the point of beginning to include Western Refining South Plant, Western Refining North Plant, Trans Mountain Oil Co., Navajo Oil and all property contained within the boundary specified in this section.

2. Beginning at the intersection of the centerline of Lafayette Drive and the centerline of San Paulo Drive westerly to the east side of Lot 7, Block 28; thence northerly to the south line of Lot 1, Block 39; then easterly to the centerline of Lafayette Drive; thence southerly to the point of beginning, to include the Municipal Service Center.

3. Beginning at a point marked by the intersection of the centerline of Beech Street and the northerly right-of-way line of Boeing Drive; thence westerly along the centerline of the Boeing Drive separation median to a point on the east line of Lot 24, Block 4, El Paso International Airport Tracts; then northerly along the east line of Lot 24, Block 4, extended to a point on the south edge of a fifty-foot wide service taxiway; thence westerly along the south edge of the taxiway to a point opposite the easterly line of Lot 10, Block 4, El Paso International Airport Tracts, extended; thence southwesterly to and along the said easterly line of Lot 10, Block 4, to a point lying one hundred twenty-five feet northerly of the north right-of-way line of Boeing Drive; thence northwesterly perpendicular to the above line across Lot 10, Block 4, to a point lying in the westerly line of the Lot 10, Block 4; thence westerly to a distance of two hundred seventy-five feet to a point lying seventy-five feet north of the northerly right-of-way line of Boeing Drive and being within Lot 9, Block 4, El Paso International Airport Tracts; thence northerly through the remainder of Lot 9, Block 4, and through Lot 8, Block 4, to a point being the southeasterly corner of Lot 6, Block 4, El Paso International Airport Tracts; thence northeasterly across Lot 5, Block 4, to a point being the northeasterly corner of Lot 4, Block 4, El Paso International Airport Tracts; thence northeasterly through the approximate centers of Lots 1 and 2, Block 4, El Paso International Airport Tracts to a point lying in the northeasterly right-of-way line of Northrup Road; thence northwesterly along the right-of-way line of Northrup Road to a point in the southerly right-of-way line of American Drive; thence northeasterly along the southerly right-of-way line of American Drive to a point in the southwesterly right-of-way line of Convair Road; thence southeasterly along the right-of-way line of Convair Road and along an extension of said line for a total distance of seven hundred feet to a point; thence perpendicular to the above line northeasterly a total distance of two hundred fifty feet to a point; thence perpendicular to the above line northwesterly to a point; the point being an intersection of this line with the northerly right-of-way line of Convair Road extended; thence westerly along the northerly right-of-way line of Convair Road extended to an intersection with a line being an extension of the east line of Taxiway "A"; thence north along said extension of the east line of Taxiway "A" to a point being on the southeasterly line of Runway 4-22; thence northeasterly along the southeasterly line of Runway 4-22 to an intersection with the south line of the Runway 8-26 (left) stopway; then easterly along said south line of the Runway 8-26 (left) stopway to an intersection with the easterly line of Taxiway "M" thence southeasterly along the easterly line of Taxiway "M" to an intersection with the north line of Military Cargo Apron; then easterly along the north line of the Military Cargo Apron and along an extension of said line for a distance of approximately one thousand one hundred fifty feet to a point; thence northeasterly parallel to the northerly property line of Block 17, El Paso International Airport Tracts for a distance of approxi-

mately one thousand eight hundred feet to a point; thence easterly to a point lying in the extended easterly property line of Lot 8, Block 17, El Paso International Airport Tracts, the point also being one hundred twenty-five feet north of the northwest corner of the Lot 8, Block 17; thence southerly to a point being the northwesterly corner of Lot 9, Block 17 (FAA Tower Site); thence westerly to a point being the midpoint of the east line of Lot 6 and the west line of Lot 7. Block 17, El Paso International Airport Tracts; thence southwesterly on a line intersecting the midpoints of the lot lines through Lots 6, 5, 4 and 3 and the line extended straight across Lots 1 and 2 to an intersection with the northerly right-of-way line of Boeing Drive; thence westerly along the northerly right-of-way line of Boeing Drive to the point of beginning; all of which has been laid out and marked on the plat entitled "El Paso International Airport Wholesale Gasoline and Fuel District" and dated April 11, 1968.

4. A portion of Lots 7 and 8, Block 17, El Paso International Airport Tracts, Units 9, El Paso County, Texas, being more particularly described by metes and bounds as follows to wit; from a point, said point being the common southerly corner of Lots 6 and 7, Block 17, El Paso International Airport Tracts, Unit 9, the point also lying in the northerly right-of-way line of Shuttle Columbia Drive; thence along the northerly right-of-way line of Shuttle Columbia Drive 30.00 feet along the are of a curve to the right, whose central angle is 3°11'00" whose radius is 540.12 feet and whose chord bears North 69°43'31" East a distance of 30.01 feet to a point, said point lying on the northerly right-of-way line of Shuttle Columbia Drive, said point also being the point of beginning; thence North 21°51'59" West a distance of 264.79 feet; thence North 81°10'07" East a distance of 402.14 feet; thence South 8°49'53" East a distance of 250.00 feet to a point, the point lying on the northerly right-of-way line of Shuttle Columbia Drive; thence South 81°10'07" West continuing along the northerly right-of-way line of Shuttle Columbia Drive a distance of 250.00 feet; thence continuing along the northerly right-of-way line of Shuttle Columbia Drive 92.87 feet along the are of a curve to the left, whose central angle is 9°51'06" whose radius is 540.12 feet and whose chord bears South 76°14'34" West a distance of 92.76 feet to the point of beginning and containing in all 2.148 acres of land, more or less, to include Chevron Oil Products.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.140.4 Section 5706.5.4.5 Commercial, industrial, governmental or manufacturing, Amended.

5706.5.4.5 Commercial, industrial, governmental or manufacturing.

Dispensing of Class II and III motor vehicle fuel from tank vehicles into the fuel tanks of motor vehicles located at commercial industrial, governmental or manufacturing establishments is allowed where permitted, provided that such dispensing operations are conducted in accordance with the following:

1. Dispensing shall occur only at sites that have been permitted to conduct mobile refueling as per IFC section 105.6, as amended by 9.52.030.5 of this Chapter.

2. The representative of a mobile fueling operation shall provide to the jurisdiction a written response plan which demonstrates readiness to respond to a fuel spill and carry out appropriate mitigation measures, and describes the process to dispose properly of contaminated materials.

3. Omitted.

4. Omitted.

5. Omitted.

6. Mobile fueling operations shall not take place within 30 feet of buildings, property lines or combustible storage.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.140.5 Section 5706.5.1.11 Switch Loading, Amended.

Tank vehicles or tank cars that have previously contained Class I liquids shall not be loaded with Class II or III liquids until such vehicles and

all piping, pumps, hoses and meters connected thereto have been completely drained and flushed.

Exception: Switch loading is permitted when all precautions and practices are met in accordance with API, RP 2003 — 1998 Protection Against Ignitions Arising out of Static, Lightning, and Stray Currents.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.140.6 Section 5706.6.1.3 Vehicle motor shutdown, Amended.

Motors of tank vehicles or tractors shall be shut down during the making or breaking of hose connections. If loading or unloading is performed without the use of a power pump, the tank vehicle or tractor motor shall be shut down throughout such operations.

Exception: Switch loading is permitted when all precautions and practices are met in accordance with API, RP 2003 — 1998 Protection Against Ignitions Arising out of Static, Lightning, and Stray Currents.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.150 Chapter 61, Liquefied Petroleum Gas, Amended.

International Fire Code, 2021 Edition, Chapter 61, Liquefied Petroleum Gas, is hereby reserved.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.160 Appendix B, Fire-Flow Requirements for Buildings, Amended.

International Fire Code, 2021 Edition, Appendix B, Fire-flow Requirements for Buildings, is hereby adopted in its entirety with the following amendments:
(Ord. No. 019521, § 1, 7-5-2023)

9.52.160.1 Section B105.4 Fire-Flow requirements for private fire hydrants, Added.

B105.4 Fire-Flow requirements for private fire hydrants. The minimum required Fire Flow for all private fire hydrant shall be 1,000 gallons per minute.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.160.2 Section B105.5 Fire-Flow data, Added.

B105.5 Fire-Flow data.

The water flow test data shall only be valid if the required data is obtained within five years from the date plans are submitted to the AHJ.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.170 Appendix C, Fire Hydrant Locations and Distributions, Amended.

International Fire Code, 2021 Edition, Appendix C, Fire Hydrant Locations and Distributions, is hereby adopted in its entirety with the following amendments:
(Ord. No. 019521, § 1, 7-5-2023)

9.52.170.2 Section C102.1 Minimum number of fire hydrants for a building, Amended.

C102.1 Minimum number of hydrant requirements. The minimum number of hydrants required shall be determined by the fire-flow requirements referenced in Table C102.1, as amended. The requirements regarding the average spacing between hydrants and the maximum distance from any point on street or road frontage to a hydrant are found in IFC Chapter 5 Fire Service Features and Appendix D Fire Apparatus Access Roads.

Exception: The fire code official is authorized to accept a deficiency of up to 10 percent where existing fire hydrants provide all or a portion of the required fire hydrant service.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.170.3 Table C102.1 Number and distribution of fire hydrants, amended.

TABLE C102.1 — NUMBER AND DISTRIBUTION OF FIRE HYDRANTS

FIRE-FLOW REQUIREMENT (gpm)	MINIMUM NUMBER OF HYDRANTS
1,700 OR LESS	1
2,000 — 2,250	2
2,500	3
3,000	3
3,500 — 4,000	4
4,500 — 5,000	5
5,500	6
6,000	6
6,500 — 7,000	7
7,500 or more	8 or more [e]

For SI: 1 foot = 304.8 mm, 1 gallon per minute = 3.785 L/m.

a. Reduce by 100 for dead-end streets or roads.

b. Where streets are provided with median dividers which cannot be crossed by fire fighters putting hose lines, or where arterial streets are provided with four or more traffic lanes and have a traffic count of more than 30,000 vehicles per day, hydrant spacing shall average 500 feet on each side of the street and be arranged on a alternating basis up to a fire-flow requirement of 7,000 gallons per minute and 400 feet for higher fire-flow requirements.

c. Where new water mains are extended along streets where hydrants are not needed for protection of structures or similar fire problems, fire hydrants shall be provided at spacing not to exceed 1,000 feet to provide for transportation hazards.

d. Reduce by 50 feet for dead-end streets or roads.

e. One hydrant for each 1,000 gallons per minute or fraction thereof.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.170.1 Section C104.2 Existing private fire hydrants, Added.

C104.2 Existing private fire hydrants. Existing private fire hydrants on adjacent properties shall not be considered available.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.180 Appendix D, Fire Apparatus Access Roads, Amended.

International Fire Code, 2021 Edition, Appendix D, Apparatus Access Roads, is hereby adopted in its entirety with the following amendments:
(Ord. No. 019521, § 1, 7-5-2023)

9.52.180.1 Section D101.2 Roadways governed by Subdivision Ordinance, Added.

D101.2 Roadways governed by Subdivision Ordinance.

Fire apparatus access roads within subdivisions shall be as prescribed in the Subdivision Ordinance of the City of El Paso, Texas.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.180.2 Section D103.1 Access road width with a hydrant, Amended.

D103.1 Access road width with a hydrant.

Where a fire hydrant is located on a fire apparatus access road, the minimum road width shall be 28 feet exclusive of shoulders (See Figure D103.1).
(Ord. No. 019521, § 1, 7-5-2023)

9.52.180.3 Section D103.1.1 Access road length with a hydrant, Added.

D103.1.1 Access road length with a hydrant.

Where a fire hydrant is located on a fire apparatus access road, the minimum road length shall be 40 feet with the fire hydrant located on center.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.180.4 Section D103.1.1.1 Access road with hydrant access curbs, Added.

D103.1.1.1 Access road with hydrant access curbs.

Hydrant access curbs are to be painted red and be conspicuously and legibly marked with the warning "FIRE LANE—TOW AWAY ZONE" in white letters at least three inches tall with a one-half inch stroke.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.180.5 Section D103.1.1.1.1 Access road without hydrant access curbs, Added.

D103.1.1.1.1 Access road without hydrant access curbs.

If no curb is provided, a red stripe a minimum of 6 inches shall be painted on the pavement and be conspicuously and legibly marked with the warning "FIRE LANE—TOW AWAY ZONE" in white letters at least three inches tall with a one-half inch stroke.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.180.6 Section D103.2 Grade, Amended.

D103.2 Grade.

Fire apparatus access roads shall not exceed 11 percent in grade.

Exception: Grades steeper than 11 percent as approved by the fire chief, but not to exceed 15 percent.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.180.7 Section D103.4 Dead ends, Amended.

D103.4 Dead ends.

Dead-end fire apparatus access roads in excess of 250 feet shall be provided with width and turnaround provisions in accordance with Table 103.4.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.180.8 Table 103.4 Requirements for Dead-End Fire Apparatus Access Roads, Amended.

Table 103.4 Requirements for Dead-End Fire Apparatus Access Roads, is hereby amended to read as follows:

Length (feet)	Width (feet)	Turnarounds required
0—250	20	None required
251—300	20	60-foot "T cul-de-sac", 60-foot "Y" or 90-foot-diameter cul-de-sac in accordance with figure D103.1
301—600' See Note 1	20	90-foot-diameter cul-de-sac in accordance with Figure D103.1
Over 600' See Note 1	Special approval required	Special approval required

Note 1 - Intermediate turnarounds will be required, spaced at a maximum distance of 600' apart.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.180.9 Section D103.5 Fire apparatus access road gates, Amended.

1. Where a single gate is provided, the minimum gate width shall be 20 feet. Where a fire apparatus road consists of a divided roadway (median or guard post), two adjacent gates may be allowed if the minimum width of each gate is not less than 13 feet and the access road is at a straight approach and departure to the gate. The portion reduced to 13 feet shall be a minimum of 20 feet in approach and departure. The turning radius for all apparatus access roads is still required to be met for all access roads including those allowed by this section.

2. Gates shall be of the horizontal swing, horizontal slide, vertical lift or vertical pivot type.

3. Construction of gates shall be of materials that allow manual operation by one person.

4. Gate components shall be maintained in an operative condition at all times and replaced or repaired when defective.

5. Electric gates shall be equipped with a means of opening the gate by fire department personnel for emergency access. Emergency opening devices shall be approved by the AHJ.

6. Methods of locking shall be submitted for approval by the AHJ.

7. Electric gate operators, where provided, shall be listed in accordance with UL 325.

8. Gates intended for automatic operation shall be designed, constructed and installed to comply with the requirements of ASTM F2200. (Ord. No. 019521, § 1, 7-5-2023)

9.52.180.10 Section D103.6 Signs, Amended.

D103.6 Signs and markings.

Where required by the AHJ, fire apparatus access roads shall be marked, at the expense of the owner, with permanent "FIRE LANE—TOW AWAY ZONE" signs. Such signs shall be of standard size, color, lettering and mounting complying with El Paso City Code, Title 19, Subdivision Ordinance — Design Standards for Construction. Placement of fire lane signage shall meet the following:

1. One sign shall be posted at each end of an official fire lane. Each sign shall have a single head arrow showing the appropriate direction of the fire lane.

2. A fire lane longer than 100 feet shall have intermediate signs posted at even intervals. Intermediate signs shall have a double headed arrow indicating the fire lane is continuous. The intermediate signs may be posted as necessary, but in no case shall the interval between fire lane signs be greater than 100 feet.

3. The fire lane sign shall be securely fastened to a suitable pole or support with a minimum vertical clearance above the sidewalk of 7 feet.

4. When poles are used to mount fire lane signs they shall be placed 2 feet 6 inches behind the face of the curb. In accordance with the El Paso City Code, Title 12 — Vehicles and Traffic, no pole or obstruction may be placed within 5 feet of a fire hydrant.

5. Fire lane signs shall be posted parallel to the lane or curb to which they apply.

6. When the distance between the curb and a building, pole or other structure is 8 feet or less, the fire lane signs may be posted on the face of the building, light pole or other structure. The bottom of the sign shall be located 7 feet above the adjacent sidewalk.

7. When required by the AHJ, the owner shall also cause curbs to be painted red and be conspicuously and legibly marked with the warning "FIRE LANE—TOW AWAY ZONE" in white letters at least 3 inches tall with a one-half inch stroke, at intervals not exceeding 50 feet. If no curb is provided, a red stripe a minimum of 6 inches wide shall be painted on the pavement and be conspicuously and legibly marked with the warning "FIRE LANE—TOW AWAY ZONE" in white letters at least 3 inches tall with a one-half inch stroke, at intervals not exceeding 50 feet.

8. It is unlawful for any person, without lawful authority, to remove any signs designating a fire lane. It shall be unlawful for any person to place, maintain or display any unauthorized fire lane, or use the color red for the marking of a no parking zone that purports to be, imitates or resembles official signage or marking of a fire lane. (Ord. No. 019521, § 1, 7-5-2023)

9.52.180.11 Figure D103.6 Fire Lane Signs, Amended.

Figure D103.6 Fire Lane Signs

(Ord. No. 019521, § 1, 7-5-2023)

9.52.180.12 Section D103.6.1 Roads 20 to 28 feet in width, Amended. D103.6.1 Roads up to 28 feet in width.

Fire apparatus access roads less than or up to 28 feet wide shall be posted on both sides as a fire lane.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.180.13 Section D103.6.2 Roads more than 28 feet in width, Amended.

D103.6.2 Roads more than 28 feet in width.

Fire apparatus access roads more than 28 feet wide and less than 36 feet wide shall be posted on one side of the road as a fire lane.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.180.14 Section D103.6.3 Responsibility, Added.

D103.6.3 Responsibility.

The owner or his representative of a building which is adjacent to the fire lane shall be responsible for maintaining the fire lane and ensuring that the fire lane free is clear of obstructions. It is unlawful to park any vehicle other than an authorized emergency vehicle in any fire lane. Unauthorized vehicles parked in designated fire lanes that block fire department or other emergency vehicle access may be towed to a designated storage facility by the authority of the AHJ.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.180.15 Section D103.6.4 Records, Added.

D103.6.4 Records.

The official records of the designation and location of any such fire lanes shall be kept by the AHJ. The AHJ may require the property owner to submit site plans for determining and recording fire lanes on the property.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.180.16 Section D103.7 Enforcement, Added.

D103.7 Enforcement.

The AHJ is empowered to enforce all fire lane violations when a designated fire lane is properly identified by signs, painted curbs, painted pavement, or by combination thereof.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.190 Appendix E, Hazard Categories, Amended.

International Fire Code, 2021 Edition, Appendix E, Hazard Categories, is hereby adopted in its entirety.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.200 Appendix F, Hazard Ranking, Amended.

International Fire Code, 2021 Edition, Appendix F, Hazard Ranking, is hereby adopted in its entirety.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.210 Appendix G, Cryogenic Fluids-Weight and Volume Equivalents, Amended.

International Fire Code, 2021 Edition, Appendix G, Cryogenic Fluids Weight and Volume Equivalents, is hereby adopted in its entirety.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.220 Appendix I, Fire Protection Systems-Noncompliant Conditions, Amended.

International Fire Code, 2021 Edition, Appendix I, Fire Protection Systems Noncompliant Conditions, is hereby adopted in its entirety.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.230 Appendix N, Indoor Trade Show and Exhibitions, adopted.

International Fire Code. 2021 Edition, Appendix N, Indoor Trade Shows and Exhibitions, is hereby adopted in its entirety.
(Ord. No. 019521, § 1, 7-5-2023)

9.52.240 Appendix O, Fee Schedule, Added.

Appendix O Fee Schedule.

O101 License Fees.

O101.1 The AHJ is authorized to charge a separate fee for each license and permit required by this Fire Code in the amount identified in the adopted budget resolution for the current fiscal year or other appropriately adopted resolution by the City Council. When hourly rates are specified in the budget resolution or other appropriately adopted resolution by the City Council, the minimum charge shall be as specified in the resolution. There shall be no reduction in the hourly rate based on services performed taking less than the full hour.

Within the ordinance, budget resolution, application forms, and adopted IFC and amendments, the term license may be also identified by and interchanged with the term permit.

O101.2 Hazardous Materials.

A. When a license for hazardous materials is required by International Fire Code Section 105.6, as amended by 9.52.030.4 this Chapter, for a facility, the owner or operator of such facility shall pay a license fee as identified in the adopted budget resolution for the current fiscal year or other appropriately adopted resolution by the City Council.

B. Temporary Workplaces: When a hazardous materials license is issued for a facility, such location may have temporary workplaces at locations outside of the facility for which the license was issued, provided that such temporary workplaces are listed on the chemical description sheet submitted with the license application or on other forms designed by the Fire Department. Licensees shall submit to the El Paso Fire Department any changes in the location of temporary workplaces and receive approval of such changes by the El Paso Fire Department prior to using such temporary workplaces. To qualify as a temporary workplace, the location shall have fewer than twenty-five reportable chemicals and shall be staffed less than twenty hours a week. Additional licenses shall not be required for temporary workplaces.

O102 Re-Inspection fees. For any re-inspection required because the facility and/or fire system failed to comply with this Fire Code or because the work was not ready for the inspection as requested; or if the request is for a partial inspection, partial acceptance and/or phase inspection, a fee shall be in an amount identified in the adopted budget resolution for the current fiscal year or

other appropriately adopted resolution by the City Council. Inspections conducted by firefighting companies requiring a Fire Inspector follow-up shall be assessed a re-inspection fee in an amount identified in the adopted budget resolution for the current fiscal year or other appropriately adopted resolution by the City Council.

O103 Investigation/Inspection fees. For any investigation or inspection which is not a part of a regular license or permit program, whether during regular duty hours or at a time other than regular duty hours, the fee shall be identified in the adopted budget resolution for the current fiscal year or other appropriately adopted resolution by the City Council. Said fee may be in addition to any other required fees.

O104 Fire Watch/Standby. The AHJ, as defined in the IFC, shall have authority to require a fire-watch, as defined by the section 202 IFC. Fire watch personnel shall be referred to as fire guards, and shall comply with NFPA 601, Standard for Security Services in Fire Loss Prevention. If El Paso Fire Department personnel function as fire guards, whether during regular duty hours or other than regular duty hours, a fee shall be assessed in an amount identified in the adopted budget resolution or other appropriately adopted resolution by the City Council for the current fiscal year. Fire guards shall not be assigned to other duties that will interfere with their fire watch function.

O105 Site Assessments/Non-regulatory Inspections. Inspections that are outside the regulation of the International Fire Code or an ordinance of the City of El Paso, and are not initiated by the El Paso Fire Department, shall be assessed a fee as specified in the adopted budget resolution for the current fiscal year or other appropriately adopted resolution by the City Council. Such inspections include those requested in order to comply with an applicable government regulation, or which are solely for the purpose of consulting or pre-construction guidance. Home fire safety inspections shall be offered without charge.

O106 Commercial Safety Training. Commercial for-profit entities requesting fire safety training to comply with applicable government regulation shall be assessed a fee as specified in the adopted budget resolution or other appropriately adopted resolution by the City Council for the current fiscal year.

O107 Fire Protection Systems. A fee shall be assessed in an amount identified in the adopted budget resolution for the current fiscal year or other appropriately adopted resolution by the City Council for the plan review and a separate fee shall be assessed for all fire protection systems initial acceptance tests/site inspections exclusive to El Paso Fire Department review. Fire protection systems failing inspection, in whole or in part, shall be assessed a re-inspection fee in an amount identified in the adopted budget resolution for the current fiscal year or other appropriately adopted resolution by the City Council.

O108 Building Permit Fire Finals. Fire final inspections for building permits shall be assessed a fee in an amount identified in the adopted budget resolution for the current fiscal year or other appropriately adopted resolution by the City Council.

O109 Expedited Services Fees. A fee shall be assessed for expedited inspections, customized plan review, and plans reviewed by appointment upon request in an amount identified in the adopted budget resolution for the current fiscal year or other appropriately adopted resolution by the City Council. Such services shall be subject to availability and the approval of the AHJ.
(Ord. No. 019521, § 1, 7-5-2023)

Chapter 9.80

WATER WELLS

Sections:

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9.80.030 Permit—Fees.
9.80.040 Extending depth authorized in permit—Additional permit required.
9.80.050 Permit—Wells less than fifty feet deep—Applicability of provisions.
9.80.060 Permit—Executing in duplicate.
9.80.070 Pipe casing weights.
9.80.080 Extension of casing above surface—Furnishing records and samples of earth required.
9.80.090 Change in casing size—Sealing off openings.
9.80.100 Drilling of wells over eighty feet deep—Manner of doing work—Abatement of nuisance.
9.80.110 Correction of defects—Statement required.
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9.80.150 Enforcement—Duty of the public service board and superintendent of the department of water and sewerage.
9.80.160 Enforcement—Powers and duties of superintendent.
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9.80.180 Failure to comply with order of enforcing authorities deemed a violation of chapter.

9.80.010 Permit—Required.

It is unlawful for any person to drill or otherwise construct, repair, correct, abandon or plug a well, or to engage upon such work, within the city, without first applying for and securing a permit from the superintendent, with the approval of the public service board. Such permit shall be granted by such superintendent, with the approval of such board, to any person who files with the superintendent the application hereinafter provided for, and pays the fee hereinafter required, and complies with all other provisions of this chapter applicable to him. (Prior code § 23-14)

9.80.020 Permit—Application—Contents.

Every application for a permit for the construction, repair and correction, abandonment or plugging of a well, shall state the name and address of the owner thereof; the purpose for which the permit is desired, which shall be one or more of the acts mentioned in Section 9.80.010; the definite location of the well or proposed well; its approximate depth; and if for a permit for the drilling or construction or repair and correction of a water well, the estimated amount of water to be, or which is, pumped daily, monthly or annually, and the uses for which the water will be or is required; if for a permit for the drilling or construction or for the repair and correction of a well, the proposed method of drilling or construction, or the proposed method of repair and correction, and the kind of equipment to be used; and, in all cases, the name of the contractor when the owner desires to drill or construct, repair and correct, or do the work pursuant to an abandonment of a well in compliance with this chapter through a contractor. (Prior code § 23-15)

9.80.030 Permit—Fees.

The fees for the permits required by this chapter shall be as follows:

A. For the drilling or construction of a new well up to fifty feet deep, ten dollars;

B. For the drilling or construction of a new

well fifty feet deep to one hundred and fifty feet deep, twenty dollars;

C. For the drilling or construction of a new well one hundred and fifty feet deep to four hundred feet deep, thirty dollars;

D. For the drilling or construction of a new well over four hundred feet deep the fee set out in subsection C of this section and in addition thereto, for each one hundred feet or fraction thereof in excess of four hundred feet, ten dollars;

E. To repair or correct a defective well, twenty dollars;

F. To abandon or plug a well, twenty dollars. (Prior code § 23-16)

9.80.040 Extending depth authorized in permit—Additional permit required.

It is unlawful for any applicant who obtains a permit to construct a well of a certain depth to extend such well to a depth exceeding the depth provided for in such permit without first obtaining an additional permit therefor. (Prior code § 23-17)

9.80.050 Permit—Wells less than fifty feet deep—Applicability of provisions.

The provisions of this chapter shall not apply to wells or other openings less than fifty feet in depth; provided, however, the owner of any proposed well less than fifty feet in depth shall be required to apply for and receive from the superintendent of the department of water and sewerage a permit to construct such well, the application for which shall supply all the information required under Section 9.80.020, and for such permit the superintendent will charge and receive the fee provided for in Section 9.80.030. (Prior code § 23-18)

9.80.060 Permit—Executing in duplicate.

All permits shall be executed in duplicate, one copy to be delivered to the applicant and one copy to be retained in the office of the public service board. (Prior code § 23-19)

9.80.070 Pipe casing weights.

A. Every well hereafter constructed shall be cased with standard pipe which shall weigh per foot not less than the weights specified in the following table:

Size of Casing and Screen	Minimum Weight Per Foot of Casing
4″ inside diameter	10 pounds
5″ inside diameter	14 pounds
6″ inside diameter	18 pounds
8″ inside diameter	28 pounds
10″ inside diameter	40 pounds
12″ inside diameter	49 pounds
15″ outside diameter	60 pounds
18″ outside diameter	80 pounds
20″ outside diameter	89 pounds

B. The pipe and also the screen proposed to be used shall in all cases be subject to the approval of the superintendent. (Prior code § 23-21)

9.80.080 Extension of casing above surface—Furnishing records and samples of earth required.

The casing of every well shall extend one foot above the surface of the ground at the location of the well, or, if in the judgment of the superintendent greater extension is required to prevent the possible contamination and pollution of the city's water supply, the casing shall extend such distance above the surface of the ground as in his judgment is necessary to effect such purpose. The owner of the well shall furnish to the superintendent a complete log during the construction of the well, which shall record the top and bottom of each change in formation and shall also furnish, if required by him, the superintendent, samples of the material at each change in formation, these samples to be enclosed in covered glass containers and plainly labelled with the depth at top and bottom of the section of the well from which they were taken, and should any stratum be of greater thickness than ten feet samples shall be taken and preserved of such section as each ten feet or fraction thereof in the manner herein described. (Prior code § 23-22)

9.80.090 Change in casing size—Sealing off openings.

The owner of a well under construction shall furnish to the superintendent a complete record of the length, position and size of each change in diameter of the well casing, together with the position and size of screens and number and size of screen openings. Where smaller casings are inserted inside those of larger diameter there shall be used an overlap of at least ten feet, and every opening between the different sizes of casings shall be completely sealed in a manner satisfactory to the superintendent, and all water above, and below if required by him, the depth from which a supply will be taken shall be sealed off and prevented from mixing with the supply source of such well. The method of casing and sealing in all particulars shall be subject to the approval and under the supervision of the superintendent, and no well shall be put in operation until authorized in writing by the superintendent of the city waterworks, and such authorization shall be given when such superintendent has been satisfied that the provisions of this chapter governing the construction and operation of the well have been in all things complied with. (Prior code § 23-24)

9.80.100 Drilling of wells over eighty feet deep—Manner of doing work—Abatement of nuisance.

Any well over eighty feet in depth shall be so drilled, installed or constructed that it will prevent the mixing of water or liquid from above or below such water-bearing strata, such construction, drilling and installation to be accomplished in the following manner:

A. There must first be a test hole drilled to the full depth at which it is proposed to finish the well and at the exact location of the proposed well. This test hole must be at least six inches bottom diameter and the driller shall keep an accurate log or record of all formations penetrated, such log to contain information concerning the depth and nature of each formation penetrated as well as the depth of the top and bottom of each formation below the ground surface, and shall, during the drilling of such test hole obtain true samples of water or liquid from each water-bearing formation penetrated. When the test hole is finished or completed the owner shall submit two copies of such log or record to the superintendent together with the certified chemical analyses of true samples of water obtained from all water-bearing formations penetrated. The superintendent shall determine which strata penetrated and which water obtained from the test hole are objectionable and likely to pollute the water-bearing strata from which the water supply of the city is taken or drawn.

B. In the event that it is apparent that a stratum of contaminated water or water having a high mineral content has been encountered in the test hole below the water-bearing strata from which the water supply of the city is taken or drawn, it shall be imperative that such contaminated or highly mineralized stratum be plugged or closed off from the remainder of the well. This shall be accomplished by pumping through a pipe extending to the bottom of the test hole a plastic or aqueous mixture of quick-setting cement of sufficient quantity to completely plug or extend entirely through such contaminated or mineralized stratum and well up into the first impervious or nonwater-bearing stratum above. The test hole shall then be allowed to remain undisturbed for a period of at least twenty-four hours in order that the cement plug become thoroughly set or hardened.

C. In order to prevent contaminated, polluted, highly mineralized or otherwise objectionable water encountered in any stratum above those from which the water supply of the city is taken or drawn, from entering or mixing with the water-bearing strata from which the city supply is taken or drawn, and to prevent the entrance of surface water to such water-bearing strata, in each case of a well drilled over eighty feet and penetrating the water-bearing strata from which the city supply is taken or drawn, the following

procedure shall be followed: The test hole shall be reamed out to the desired diameter of the finished well down to the first impervious or nonwater-bearing stratum above the strata from which the water supply of the city is taken or drawn. The casing shall then be set down to the aforesaid point or depth and upon a nonwater-bearing or impervious stratum. The annular space between the outside of the casing and the bore hole or natural formations shall then be completely filled with a plastic or aqueous mixture of quick-setting cement which shall be pumped into the well under pressure through a pipe or conduit extending to the bottom of the casing as set, such cement entering the annular space between the outside of the casing and the bore hole at the bottom of such casing, and filling such annular space by flowing upward to the top of the well or surface of the ground. Evidence of such annular space being completely filled shall be by the plastic or aqueous cement mixture returning to and flowing from the annular space at the surface of the ground.

D. All cementing work called for above, shall be performed by a person regularly engaged in such business and approved by the superintendent; provided, however, the drilling contractor or driller of the well may perform such work if he submits satisfactory evidence to such superintendent that he is thoroughly capable, qualified and equipped to do any and all of such cementing work; and provided further, no person shall commence or perform such cementing work without having been approved for same by the superintendent.

E. Every well which for any reason does not completely prevent the mixing of water or other liquid from above and below the source of the city's water supply with the water in the course of the city's water supply, or which for any reason would tend to pollute or contaminate the water in the course of the city's water supply shall be considered a defective well and is hereby declared to constitute a nuisance, and the superintendent on his own initiative or upon information or complaint from any source shall make an examination of any well suspected of being defective and shall issue written instructions to the owner or his agent in charge of such well or the property upon which it is situated, for correcting the defects to comply with the provisions of this chapter, and shall prescribe a time which, in his judgment, under all the circumstances, is reasonable and within which such instructions shall be complied with. It is unlawful for the owners or operators of such defective well to fail to comply with such instructions and abate such nuisance within the time limit prescribed by such superintendent, and in addition such nuisance may be abated by the city as hereinafter provided.

F. The provisions in subsection B of this section, relating to the plugging of wells where contaminated water or water having a high mineral content has been encountered below the stratum or strata from which the water supply of the city is taken or drawn, and the provisions of subsection C of this section, relating to the seal or casing of wells above the strata from which the water supply of the city is taken or drawn, shall apply to all wells heretofore drilled or which are now being drilled, or which may have been abandonded, as well as all wells which are hereafter drilled, and upon proper notice, as called for in Section 9.80.130 being given to the owner, agent of the owner or lessee of the property on which any such well is situated, such well shall be plugged or sealed as called for herein, and upon the owner, agent of owner or lessee failing to comply, he shall be deemed guilty of a misdemeanor for maintaining a nuisance and punished as provided for in Sections 1.08.010, 1.08.020 and 1.08.030. In addition, should the owner, agent of owner or lessee fail to comply with the order of the superintendent, the superintendent may apply to the city council of the city for permission to plug, seal or case such defective well and thereby abate such nuisance, and place a lien on

such property and a personal charge against the owner to cover the costs thereof, and setting forth in his application the location of the well, the name of the record owners of such property and the agents, if any, in charge of same and the lessees, if any, in possession of such property, and in addition, such superintendent shall state in such application the manner in which such well is defective. Notice of the filing of such application to plug, case or seal such well and place alien on the property and a personal charge against the owner to cover the costs thereof, directed to the record owners, shall be published once in the official newspaper of the city and not less than five days thereafter, at any regular meeting of the city council, such city council may hear such application, and if it determines by resolution that such well is defective and thereby constitutes a nuisance, it shall by resolution order the superintendent of the city waterworks to proceed with the plugging, casing or sealing of such well and to file upon completion of the work, with the city clerk, a sworn statement setting forth the expenses incurred in plugging, sealing or casing the well, and upon the filing of such statement, the mayor shall incorporate same in a notice to be executed and acknowledged by him and filed with the county clerk, setting forth the claim of the city for expenses incurred in plugging, sealing or casing such well, and upon the filing of such notice, same shall constitue a lien against the property on which such well is located and a personal charge against the owner and suit may be instituted thereon, and such lien foreclosed as provided by law for the foreclosure of other liens. Notice shall be given to any person in possession of the property on which the defective well is located by mailing a copy of the published notice to such person. (Prior code § 23-25)

9.80.110 Correction of defects—Statement required.

Upon completion of the work of correcting the defects of any well, and before putting it into operation, the owner of such well shall file with the superintendent a sworn statement that all defects have been corrected to comply with this chapter in accordance with instructions issued by the superintendent, and failure to file such statement within thirty days after completion of correction of the defects shall be deemed a violation of this chapter. (Prior code § 23-27)

9.80.120 Abandoned wells—Method of filling and plugging.

For the purpose of this chapter, an abandoned well is (a) a defective well which, in the judgment of the superintendent, cannot be corrected to comply with the requirements of this chapter, or (b) any well which has been continuously out of use for a period of two years, or longer. Whenever any well has not been in active use for more than two years, the owner or operator of the same shall report such fact to the superintendent. Every abandoned well shall be filled and plugged with such materials and in such manner as, in the judgment of such superintendent, will prevent the pollution and contamination of the city's water supply. Such filling and plugging shall be done under the supervision of such superintendent, and at the expense of the owner of such well. Whenever the superintendent shall receive notice from any source, of the existence of an abandoned well which has not been plugged and filled in accordance with the provisions of this chapter, he shall notify the owner or agent in charge of such well or of the property upon which it is situate that such well is abandoned and shall instruct him to fill and plug such well in accordance with this chapter, and the owner or operator of such well shall comply with such order within sixty days after the date of same. Should he fail to so comply within such period or if after using reasonable diligence, should the superintendent fail to locate the owner or agent in charge of such well or of the property upon which the well is situate, the superintendent shall go on the land or property upon which the well is situate and fill and plug the same in the manner required by this chapter. Whenever it becomes necessary for the

superintendent to fill and plug any abandoned well the owner thereof shall be liable to the city for the cost of doing such work. (Prior code § 23-28)

9.80.130 Wells polluting or contaminating city water supply declared to be nuisances—Abatement.

Any well or other opening now constructed or which may hereafter be constructed penetrating the underground water supply, and which pollutes or contaminates, or tends in the judgment of the superintendent to pollute or contaminate the city's water supply and which cannot be corrected in the judgment of the superintendent to prevent pollution or contamination, is declared a nuisance and on notice to the owner of such well or opening, or to his agent in charge of it or of the property on which it is situate, issued by the superintendent such nuisance shall be abated by the owner within sixty days from the date of such notice, by filling and plugging the well or opening in the manner provided for in this chapter for abandoned wells, and if he shall fail to abate such nuisance within such time or if after exercising reasonable diligence, the superintendent is unable to locate the owner or his such agent, the superintendent shall go on the land or property upon which the well is situate, and abate such nuisance in the manner provided in this chapter, and the owner thereof shall be liable to the city for the cost of such work. (Prior code § 23-29)

9.80.140 Wells outside/inside city posing threat to city water supply.

The owner or lessee of property on which any well heretofore drilled or that may be hereafter drilled outside the city which is found to be a contaminating or polluting influence to the underground water-bearing strata from which the municipal water supply of the city is taken or drawn or may hereafter be taken or drawn, as well as the owner or lessee of all wells drilled inside the city, shall be subject to all the provisions of Section 9.80.100, and all other provisions of this chapter relating to the protection of the water supply of the city, and any such contaminating well may be abated as provided therein. Any person desiring to drill a well outside of the city at any location within the radius of five miles of any well inside or outside the city from which the water supply of the city is taken or drawn or may be hereafter taken or drawn, prior to drilling such well shall fully comply with all provisions of Section 9.80.100, and the provisions of this chapter relating to the protection of the water supply of the city, and upon failure to do so shall be punished as provided therein. (Prior code § 23-26)

9.80.150 Enforcement—Duty of the public service board and superintendent of the department of water and sewerage.

The public service board and the superintendent of the department of water and sewerage are charged with the enforcement of this chapter and shall exercise the powers herein granted to them for this purpose. (Prior code § 23-12)

9.80.160 Enforcement—Powers and duties of superintendent.

A. The superintendent shall have the power:

1. To make examinations of all wells within the city, whether privately owned or otherwise;

2. To make or have made at any time the necessary analyses and tests of water therefrom;

3. To go upon the land and property of the owners of wells for that purpose;

4. To require the owners to furnish all information requested concerning them;

5. To supervise the construction, repair, abandonment and plugging of wells and the operation of the same.

B. The superintendent shall keep an accurate register of all wells within the city, which shall show the name of the owner, the location and date of construction of each well, its depth and

diameter, the purpose for which the well was constructed, and if abandoned, the date of such abandonment. At such intervals as may be considered necessary by the superintendent, but not exceeding two years, there shall be entered in the register the then condition of each well registered, together with an analysis of the water from each of such wells.

C. Whenever necessary to make an inspection to enforce any of the provisions of this chapter the superintendent or his authorized representative may enter such building or premises at all reasonable times to inspect the well or to perform any duty imposed upon the superintendent by this chapter; provided, that if such building or premises be occupied, he shall first present proper credentials and request entry; and if such building or premises be unoccupied, he shall first make a reasonable effort to locate the owner or other persons having charge or control of the building or premises and request entry. If such entry is refused, the superintendent or his authorized representative shall have recourse to every remedy provided by law to secure entry.

D. When the superintendent or his authorized representative shall have first obtained a proper inspection warrant or other remedy provided by law to secure entry, no owner or occupant or any other persons having charge, care or control of any building or premises shall fail or neglect, after proper request is made as herein provided, to promptly permit entry therein by the superintendent or his authorized representative for the purpose of inspection and examination pursuant to this chapter. (Prior code § 23-20)

9.80.170 Furnishing water samples.

The owner of every well shall furnish to the superintendent for analysis, samples of water when and as required, not only during the construction of the well, but at any time thereafter when requested. (Prior code § 23-23)

9.80.180 Failure to comply with order of enforcing authorities deemed a violation of chapter.

It shall be deemed a violation of this chapter for any person to fail or refuse to comply with any order of the superintendent, or of the public service board, made in conformity with and under the authority of this chapter. (Prior code § 23-13)

Chapter 9.84

MISCELLANEOUS HEALTH REGULATIONS

Sections:

9.84.010 Storage and use of manure and compost.

9.84.020 Ice manufactured outside city for sale within city.

9.84.030 Spitting.

9.84.040 Reserved.

9.84.050 Reserved.

9.84.010 Storage and use of manure and compost.

A. Definitions. As used in this section:

1. "Compost" means the product resulting from the decomposition and stabilization of organic matter by biological action.

2. "Manure" means undecomposed or partially decomposed animal feces.

3. "Organic material" means decaying but not fully decomposed plant matter.

4. "Composting" is a managed process that promotes the decomposition of organic material by biological action.

B. Sale, Storage and Use Prohibited. No person shall sell or store manure within the city, nor shall manure or organic material be used as a fertilizer or soil enhancer, unless first composted.

C. Backyard Composting Allowed.

1. Individuals shall be allowed to engage in composting of organic materials generated from their households, to include kitchen wastes not prohibited under subsection (C)(2) of this section and yard wastes. Composting shall be conducted in a sanitary manner which prevents nuisance conditions that include, but are not limited to, those that attract vermin or create noxious odors.

2. The outdoor composting of any meat scraps, dairy products, cooking oils, (such as lard, vegetable oil, and bacon grease) and pet feces is prohibited.

3. Composting shall be confined to an enclosed structure in an area not greater than fifty square feet for any given household.

D. The director of the department of environmental services, or his designee, shall be responsible for the enforcement of this provision. (Ord. 16812 § 52, 2007; Ord. 13407, 1997; prior code § 12-6)

9.84.020 Ice manufactured outside city for sale within city.

It is unlawful for any person to sell or offer for sale or distribute in the city any ice manufactured outside the city except ice manufactured wholly with distilled water. (Prior code § 12-8)

9.84.030 Spitting.

It is unlawful for any person to spit upon any sidewalk or upon the floor of any bus, or other vehicle which is used for the conveyance of passengers, or upon the stairway, floor, passages or walls of any public building in the city, or upon the walks, grass, grounds, seats or stands in any of the public parks in the city where people are accustomed to resort for recreation, rest or amusement. (Prior code § 12-9)

9.84.040 Reserved.

9.84.050 Reserved.

Editor's note—Ord. No. 17163, § 2, adopted August 11, 2009, repealed § 9.84.050, which pertained to venereal disease clinic—fees and derived from Ord. 16812, § 54, 2007; Ord. 8136, 1984.

Chapter 9.85

EMERGENCY AND TRANSFER AMBULANCE SERVICES

Sections:

Article I. General Provisions

9.85.010 Ambulances—Response to calls to be in compliance with franchise terms.

9.85.020 Requests for service.

9.85.030 Posting.

Article II. Private Emergency and Transfer Ambulance Service

9.85.040 Definitions.

9.85.050 Franchise—Required.

9.85.060 Franchise application—Contents; denial.

9.85.070 Franchise—Application; factors considered; review; hearing.

9.85.080 Insurance.

9.85.090 Attendants and drivers—Requirements.

9.85.100 Ambulance operations.

9.85.110 Personnel, vehicles and equipment—Standards and requirements; inspection.

9.85.120 Private emergency service regulations.

9.85.130 Franchise—Suspension; revocation; appeal.

9.85.140 Violation—Penalty.

Article I. General Provisions

9.85.010 Ambulances—Response to calls to be in compliance with franchise terms.

The driver or operator, as the term is defined in Section 9.85.040 F, of an ambulance, other than a city EMS vehicle, shall not respond to any call to pick up an ill, injured or dead person in any public street, public alley or public park except in compliance with the terms of a franchise granted by the city council.

(Ord. No. 18547, § 1, 8-9-2016)

9.85.020 Requests for service.

No person shall, by any means whatsoever, cause the El Paso emergency medical service to dispatch an EMS ambulance, unless he or she knows, or has reasonable grounds to believe, that a bona fide medical emergency exists.

(Ord. No. 18547, § 1, 8-9-2016)

9.85.030 Posting.

A. Posting of ambulances to meet required response obligations will be allowed in areas that do not obstruct public convenience or pose a safety hazard.

B. The ambulance service shall have no right to compensation from anyone for picking up a person from a street, alley or park in violation of subsection A of this section.

(Ord. No. 18547, § 1, 8-9-2016; Ord. No. 18691, § 1, 6-13-2017)

Editor's note—Ord. No. 18691, § 1, adopted June 13, 2017, changed the title of Section 9.85.030 from "cruising prohibited" to the present title.

Article II. Private Emergency and Transfer Ambulance Service

9.85.040 Definitions.

The following words shall have the following meanings:

A. "City" means the City of El Paso.

B. "Emergency" means any circumstance that calls for immediate action and in which the element of time in transporting the sick, wounded or injured for medical treatment is essential to the health or life of the person.

C. "Emergency ambulance" means any motor vehicle especially designed, constructed, equipped and used for transporting the injured or sick in answer to an emergency call.

D. "Emergency call" means any request for ambulance service that is made by telephone or

other means of communication in circumstances which are, or have been represented to be, an emergency requiring immediate ambulance service.

E. "Emergency dispatch system" means the facility from which EMS units are radio dispatched.

F. "Operator" means any individual, firm or corporation engaged in the business of transporting the injured, wounded, sick or deceased and using the streets of the city for such purpose.

G. "Response time" means the time from which a call is received until the time of arrival at the scene.

H. "Street" means any street, alley, avenue, boulevard, drive or highway commonly used for the purpose of travel within the corporate limits of the city.

I. "Transfer ambulance" means any ambulance meeting current Texas Department of State Health Services construction requirements, equipped and used for transferring the injured or sick under circumstances which do not constitute an emergency and which have not been represented as an emergency.

(Ord. No. 18547, § 1, 8-9-2016; Ord. No. 18691, § 2, 6-13-2017)

9.85.050 Franchise—Required.

It is unlawful for any person, firm, corporation or operator to engage in furnishing a transfer service by operating, driving or causing to be operated or driven a transfer vehicle upon the streets of the city without first having obtained a franchise in accordance with the terms and provisions of this article.

(Ord. No. 18547, § 1, 8-9-2016; Ord. No. 18691, § 3, 6-13-2017)

9.85.060 Franchise application—Contents; denial.

A. Application for a franchise shall be filed with the city clerk upon forms furnished by the city clerk along with the applicable application fee. The applicant shall furnish the following information:

1. A statement that the applicant has obtained liability insurance in accordance with the requirements provided by this article before commencing service;

2. A statement of the number of vehicles which the applicant proposes to operate and the make, model and vehicle identification number of each transfer vehicle;

3. A statement that each vehicle is supplied with minimal emergency equipment as set forth in Section 9.85.110.C;

4. A list of persons who will act as ambulance attendants and drivers, their current State of Texas Department of State Health Services certificate status, and their date of employment, current driver's license issued by a U.S. state or the U.S. federal government and expiration date, defensive driving or current emergency vehicle operators course certificate, and physician release; and

5. A statement that the safety mechanism of the vehicle is operative and is in good repair; including, but not limited to, headlights, tail-lights, turn signals, brakes, brake lights, emergency lights, windshield wipers, wiper blades, handles opening doors and windows, and tires and spare tires.

B. Copies of each application for a franchise shall be forwarded to the chief of the fire department or designee for acceptance or denial, and the chief of the fire department shall review applications for ambulance service and make recommendations to the city council.

C. Any person who gives false information regarding any statements made in subsections A.1 through A.5 of this section, shall have his or her application denied, and be guilty of a misdemeanor and subject to the punitive measures set forth in Section 1.08.010.

D. The chief of the fire department may deny an application for a franchise, whether original or renewal, by serving the applicant with written no-

tice by hand-delivery or certified mail, return-receipt requested, if the chief of the fire department finds:

1. That the applicant has supplied false or incorrect information on the franchise application;

2. That the applicant has failed to supply all information required on the franchise application form; or

3. That the applicant has failed to pay the franchise application fee.

E. In the event that the applicant's franchise is under suspension or revocation, no new franchise shall be granted until the term of such suspension or revocation has expired.

F. The chief of the fire department shall issue written notice of denial of a franchise application to the applicant which shall contain, as a minimum, the following:

1. The name of the applicant;

2. Statement that the application is denied; and

3. Reason(s) for the denial.

(Ord. No. 18547, § 1, 8-9-2016; Ord. No. 18691, § 4, 6-13-2017; Ord. No. 019616, § 1, 4-23-2024)

9.85.070 Franchise—Application; factors considered; review; hearing.

A. Upon acceptance of an application for a franchise, the city council will set the time for a public hearing thereon and receive evidence as to whether the public convenience and necessity justify granting the franchise, whether the applicant is qualified to render good service and has or will have sufficient equipment of suitable type and condition, and to any other relevant facts bearing on whether the franchise will be in the public interest. The city council shall grant the franchise and determine upon what terms and conditions it will be granted, or shall refuse to grant it, in accordance with the council's findings as to whether considering the above standards, the public interest will be served.

B. In all hearings, the burden of proof shall be upon the applicant to establish that a need in the community exists for the services.

C. Factors considered. In determining public convenience and necessity, the city council may consider but not be limited to the following:

1. The need for an additional franchise. The number of providers available to provide service in the area in which the applicant proposes to furnish services, and whether granting the franchise will adversely affect existing service providers;

2. The distance from the operational address at which the applicant proposes to operate the franchise to hospitals and other medical providers serving the public;

3. Response times, total number of calls for service, and total number of completed transfers for the franchises already serving the area;

4. The reasonableness of the proposed rates to be charged by the applicant;

5. Financial responsibility of the applicant; and

6. Whether the applicant has performed such service in a satisfactory manner in the past.

(Ord. No. 18547, § 1, 8-9-2016; Ord. No. 019616, § 2, 4-23-2024)

9.85.080 Insurance.

A. No vehicle shall be operated on the public streets of the city unless the applicant provides to the city clerk a copy of the public liability insurance policy, issued by an insurance company authorized to do business in the state, required by subsection B of this section.

B. 1. Franchisee shall obtain and maintain in effect throughout the term of their franchise public liability insurance in an amount of not less than five hundred thousand dollars.

2. Franchisee shall maintain comprehensive general and automobile liability coverage with limits of no less than five hundred thousand dollars per occurrence and one million dollars annual aggregate. Franchisee shall maintain medical pro-

fessional liability coverage with limits of no less than five hundred thousand dollars per occurrence and one million dollars annual aggregate.

C. Such insurance policies shall not contain a passenger liability exclusion.

D. Each liability insurance policy shall contain a provision obligating the insured to give the city clerk written notice of cancellation or reduction not less than ten days prior to any cancellation or reduction.

(Ord. No. 18547, § 1, 8-9-2016; Ord. No. 18691, § 5, 6-13-2017)

9.85.090 Attendants and drivers—Requirements.

Attendants and drivers employed with an ambulance service must meet the following minimal requirements:

A. Be currently certified with the Texas Department of State Health Services, Emergency Medical Services Division, as an emergency medical technician and indicate the applicable level;

B. No later than ninety days from the date of employment, must provide evidence showing completion of the Texas Department of License and Regulations approved defensive driving course or a current emergency vehicle operators course certificate provided by the El Paso Fire Department; and

C. Possess a license valid to operate an emergency vehicle and transfer ambulance from the State of Texas or New Mexico; and

D. Within fifteen days of employment, must have a written statement from a physician, authorized to practice medicine in the state, stating that the person is free of communicable diseases and is physically capable of performing the required duties.

(Ord. No. 18547, § 1, 8-9-2016; Ord. No. 18691, § 6, 6-13-2017)

9.85.100 Ambulance operations.

A. Ambulance service operators, their agents or employees, upon receipt of request for emergency service within the city limits, shall immediately relay the request to the EMS emergency dispatch system.

B. Unless authorized to do so by the chief of the fire department or his designee, it is unlawful for ambulance service operators, their agents, or their employees to go to the scene of an emergency within the city limits with the intent to provide emergency service and transportation; provided, however, if persons operating a transfer or emergency vehicle discover an emergency situation within the city limits, they shall immediately notify the EMS emergency dispatch system and shall remain to render aid until an EMS vehicle arrives.

C. Franchisee shall mark each ambulance distinctly with its company's name. Franchisee's name shall be marked with a minimum one inch wide and five inches tall lettering on at least three sides of the ambulance. The color of franchisee's name must contrast with the color of the ambulance or the wrap. The Texas Department of State Health Services provider's license number shall be displayed on the sides of the ambulance with "TX" appearing prior to said number in the width and height required by the State of Texas. Business phone numbers and logos are permissible; however, the words "Emergency Medical Services" or "EMS" shall not be used in any fashion.

D. Ambulance service operators, their agents, or their employees, shall not hold out to the public in any manner that their personnel are trained EMTs or paramedics unless they have been so certified by the Texas Department of State Health Services.

E. Ambulances shall be used only for the purpose of transporting patients, and no other use shall be lawful.

(Ord. No. 18547, § 1, 8-9-2016; Ord. No. 18691, § 7, 6-13-2017)

9.85.110 Personnel, vehicles and equipment—Standards and requirements; inspection.

A. Each ambulance shall be manned by two persons, one driver and one attendant, both meeting the requirements of Section 9.85.090.

B. Each vehicle shall meet the following minimum requirements at all times:

1. Each ambulance shall pass the Texas Department of Public Safety annual inspection and maintain a copy of the report indicating the result of said inspection at all times;

2. Each ambulance shall have a heater, complete with defrosters, and an air conditioner, both capable of maintaining comfortable temperature levels in the driver and patient compartments;

3. Each ambulance shall meet the physical dimensions of the current Texas Department of State Health Services ambulance specifications; provided, however, that any ambulance currently used which does not meet these specifications may continue in use until it is replaced; and

4. Each ambulance shall be kept clean and in good mechanical condition.

C. In addition to other equipment which may be required by federal or state law, each ambulance shall carry all medical equipment that is listed on the franchisee's medical equipment daily checklist and must be clean, ready for patient use and in good working order.

1. The medical equipment daily checklist must be approved by the fire chief or designee.

2. Changes to the medical equipment daily checklist must be submitted to the fire chief or designee within fifteen days prior to the change to be in effect.

D. Prior to the commencement of franchisee's operations, the fire chief or designee shall inspect at a reasonable time all ambulances used by franchisee in operating the transfer service.

1. An ambulance must pass inspection and have a current valid permit sticker visible from the exterior of the vehicle at all times, which sticker shall be placed in the rear window prior to use for customer transportation or care.

2. Subsequent to the initial inspection, all ambulances which are franchised under this chapter shall be inspected by the fire chief or designee every two years, except as described in the following paragraph.

3. Ambulances may be inspected in the field at any hour by the fire chief or designee, and he may require any ambulance to proceed to a specified location for further inspection. If a franchisee has three ambulance field inspection failures within a twelve-month period, then the city shall reinspect franchisee's entire ambulance fleet within thirty days of the last failed field inspection.

4. Until the vehicle passes inspection, it cannot lawfully operate on the streets of the city.

5. Any ambulance found not to be in compliance with this chapter shall be tagged, and the permit sticker removed.

E. Whenever necessary to make an inspection to enforce any of the provisions of this chapter, or whenever the chief of the fire department or designee or his authorized representative has reasonable cause to believe that there exists in any building or upon any premises any ambulance containing any condition or code violation which makes such ambulance unsafe, dangerous or hazardous, the chief of the fire department or designee or his authorized representative may enter such building or premises at all reasonable times to inspect the ambulance or to perform any duty imposed upon the chief of the fire department or designee by this chapter; provided, that if such building, premises or ambulance be occupied, he shall first present proper credentials and request entry; and if such building, premises or ambulance be unoccupied, he shall first make a reasonable effort to locate the owner or other persons having charge or control of the building, premises or ambulance and request entry. If such entry is refused, the chief of the fire department or designee shall have recourse to every remedy provided by law to secure entry.

When the chief of the fire department or designee or his authorized representative shall have first obtained a proper inspection warrant or other remedy provided by law to secure entry, no owner or occupant or any other persons having charge, care or control of any building, premises or ambulance shall fail or neglect, after proper request is made as herein provided, to promptly permit en-

try therein by the chief of the fire department or designee or his authorized representative for the purpose of inspection and examination pursuant to this chapter.

The chief of the fire department or designee or his authorized representative may then direct such ambulances to proceed to a specified location for further inspection.

(Ord. No. 18547, § 1, 8-9-2016; Ord. No. 18691, § 8, 6-13-2017; Ord. No. 18927, § 1, 4-30-2019)

9.85.120 Private emergency service regulations.

A. It is unlawful for any person, either as owner, agent, or otherwise, other than a member of the El Paso EMS to furnish, operate, conduct, maintain, advertise or otherwise be engaged in or profess to be engaged in the operation of an emergency ambulance service upon the streets, alleys or any public way or place within the city limits or to avail himself of the permission given ambulances by Section 12.12.010, or any other law or ordinance, to disregard traffic laws or ordinances, except in the following circumstances:

1. It shall not be unlawful for a person operating a transfer ambulance franchised by the city, upon responding to a direct call for nonemergency conditions, to use emergency equipment, after notifying the emergency dispatch system and receiving permission to make an emergency run, when a determination is made by the transfer ambulance attendant that an emergency exists requiring the sick or injured person to be transported with all practical speed to a hospital.

2. It shall not be unlawful for any person operating a transfer ambulance franchised by the city, who is performing the service of maintaining an ambulance at a particular location for a sporting or contracted event, to operate such ambulance under emergency conditions, using emergency equipment, after notifying the emergency dispatch system and receiving permission to make an emergency run, when a determination is made by the transfer ambulance attendant that an emergency exists requiring the sick or injured person to be transported with all practical speed to the nearest appropriate hospital.

3. It shall not be unlawful for any person to operate an emergency ambulance to a hospital within the city, if the place of emergency at which the sick or injured person was picked up by such ambulance is outside the city limits and the ambulance making the emergency run is licensed and operated in accordance with all applicable state laws. On each emergency run into the city, ambulance personnel must notify the emergency dispatch system and receive permission to make an emergency run, unless otherwise notified by the section chief of the El Paso Fire Department or his designee.

4. It shall not be unlawful for any person to operate a transfer ambulance franchised by the city on an emergency run when EMS ambulances are not available, and the emergency dispatch system requests the backup emergency ambulance service for the EMS.

B. Any person operating an ambulance franchised by the city who makes an emergency run under the provisions of subsections A.1 through A.4 of this section, shall, within ten days of each emergency run, submit to the section chief of the El Paso Fire Department a report on a form provided by the chief, which shall describe the circumstances requiring the emergency run.

(Ord. No. 18547, § 1, 8-9-2016; Ord. No. 18691, § 9, 6-13-2017)

9.85.130 Franchise—Suspension; revocation; appeal.

A. Suspension. The chief of the fire department may issue a written notice of suspension or deferred suspension not to exceed sixty days subject to this chapter if the director determines that any of the following is true:

1. The franchisee has breached a provision of the franchise agreement;

2. The franchisee has had its provider license revoked, suspended, reprimanded or placed on probation by the Texas Department of State Health Services;

3. The franchisee is in violation of a provision of this chapter or a rule adopted under this chapter;

4. The franchisee is indebted to the city for fees or payment of penalties imposed by this chapter or by a rule adopted under this chapter;

5. The franchisee is not fit, willing, or able to continue operating the franchise in accordance with the license, this article, the rules and regulations established by the chief of the fire department, and other applicable state and federal laws;

6. The franchise is operating under a trade name other than the one granted to the franchise;

7. The franchisee was convicted of any felony offense while the franchise was granted; or

8. Continued operation of the franchise poses a risk to the health and safety of the community.

B. Revocation. The chief of the fire department may issue a written notice of revocation a franchise if the franchisee violates this chapter on two or more occasions within a twelve-month period or if the chief of the fire department determines:

1. The franchisee supplied false or misleading information on the application for the franchise, provider license, or any other license provided by the state.

C. Notice. The chief of the fire department shall issue a written notice of suspension, deferred suspension, or revocation of a franchise to the franchisee, which shall contain, as applicable, the following:

1. Name and address of the franchise;

2. Statement of whether the franchise is suspended or revoked;

3. Reason(s) for the suspension or revocation;

4. In the case of a suspension, a recommendation for corrective measures to bring the franchise into compliance with the requirements of this chapter;

5. Reasonable time limit for the completion of the corrective measures;

6. Statement that the franchise, if suspended, is subject to revocation for failure to complete the corrective measures within the allotted time; and

7. Statement that the suspension or revocation may be appealed.

D. A franchisee may not reapply for a new franchise for a period of twelve months after said franchise has been revoked.

E. A franchisee whose franchise has been suspended shall not work for another franchise as an employee, representative, or ambulance personnel during the suspension period. This subsection shall not apply to an employee exclusively earning a wage or salary.

F. Appeal. Within ten business days of denial, suspension or revocation, the chief of the fire department shall prepare a report indicating the reasons for the suspension or revocation, and shall provide a copy to franchisee at the address given in the franchise agreement. The decision of the chief of the fire department is final unless within ten calendar days from the date of receiving such official's report, the franchisee files with the city clerk a written appeal to the city manager specifying reasons for the appeal. Said appeal shall also include a written rebuttal to the chief of the fire department's report.

G. The city manager or a designee other than the chief of the fire department shall review the report of the chief of the fire department and the appellant's rebuttal. The city manager or designee may allow the appellant to make an oral argument or submit additional rebuttal. The city manager or designee shall make a ruling on the appeal within fourteen days after the appeal has been filed.

H. The city manager or a designee other than the chief of the fire department shall sustain, reverse or modify the action of the chief of the fire department and shall notify the appellant of the decision in writing. The decision of the city manager or designee is final.

(Ord. No. 019616, § 3, 4-23-2024)

Editor's note—Ord. No 019616, § 3, adopted April 23, 2024, renumbered the former § 9.85.130 as § 9.85.140 and enacted a new § 9.85.130 as set out herein. The historical notation has been retained with the amended provisions for reference purposes.

9.85.140 Violation—Penalty.

Any violation of any section of this chapter shall constitute a misdemeanor punishable by a fine up to five hundred dollars in accordance with Sections 1.08.010, 1.08.020 and 1.08.030 of the El Paso City Code.

(Ord. No. 18547, § 1, 8-9-2016; Ord. No. 019616, § 4, 4-23-2024)

Editor's note—See editor's note at § 9.85.130.

Title 10

PUBLIC PEACE, MORALS AND WELFARE

Chapters:

10.04 Offenses By or Against Officers and Government
10.08 Offenses Pertaining to Property
10.12 Offenses Against Public Peace
10.16 Offenses Against Public Decency
10.20 Offenses By or Against Minors
10.24 Miscellaneous Offenses

Chapter 10.04

OFFENSES BY OR AGAINST OFFICERS AND GOVERNMENT

Sections:

10.04.010 Escape from custody.
10.04.020 Police officers—Impersonating—Prohibited.
10.04.030 Police officers—Wearing same or similar uniform prohibited.
10.04.040 Police officers—Obstructing prohibited.
10.04.050 Police dogs—Interference with prohibited.
10.04.060 Subpoenas—Failure to take oath or answer questions at hearing.

10.04.010 Escape from custody.

No person committed to the custody of the chief of police or any other police officer in default of the payment of a fine imposed by the corporation court of the city, shall escape or attempt to escape from such custody before the judgment of the court imposing such fine has been satisfied. (Prior code § 15-3)

10.04.020 Police officers—Impersonating—Prohibited.

No person shall falsely represent himself to be a policeman, or without lawful authority, assume the power or exercise the duties of policemen. (Prior code § 15-8)

10.04.030 Police officers—Wearing same or similar uniform prohibited.

A. Definition. The term "public place" as used in this section means any public property, or any private property to which the general public is expressly or impliedly invited or admitted.

B. Wearing Same Uniform. No person, other than a member of the regular police force of the city, shall wear the uniform of such police force, or any distinctive part of such uniform, on any street, alley or other public place in the city.

C. Wearing Similar Uniform. No person, other than a member of the regular police force of the city, shall wear on any street, alley or other public place in the city, clothing so similar to the uniform of such police force, or to any distinctive part of such uniform, that persons of ordinary discernment, in the exercise of ordinary care, would be likely to mistake the same for the uniform of such police force, and to believe the wearer thereof to be a member of such police force.

D. Applicability of Section. This section shall not apply to persons wearing a uniform prescribed by the United States or any of its agencies, or any state, or any other municipal corporation, and lawfully entitled to wear the same; nor to any person taking part in a theatrical performance and wearing a uniform as a character in such performance; nor to any person authorized in writing by the chief of police to wear such uniform. (Prior code § 15-9)

10.04.040 Police officers—Obstructing prohibited.

No person shall, whether by words, sounds, or acts, hinder, obstruct or impede, or attempt to hinder, obstruct or impede, any police officer of the city in the performance of any official duty of such officer, other than the making of an arrest or the service of process. (Prior code § 15-30)

10.04.050 Police dogs—Interference with prohibited.

A. It is unlawful for any person to wilfully tease, bait, kick, beat, strike, mutilate, injure, disable or kill any dog used by the police department of the city in the performance of functions or duties of such department, or to interfere with or meddle with any such dog while being used by the department or any member thereof in the perfomance of any functions or duties of the department or of such officer or member.

B. Any person violating this section shall be

deemed guilty of a misdemeanor, and upon conviction thereof, shall be punished as provided in Sections 1.08.010 through 1.08.030. (Prior code § 15-31)

10.04.060 Subpoenas—Failure to take oath or answer questions at hearing.

A. No person shall fail or refuse to obey any subpoena or subpoena duces tecum issued by any commission, board or officer of the city having authority to issue the same, or fail or refuse to take the oath or affirmation as a witness at any hearing before such commission, board or officer when lawfully called upon to take the same, or at any such hearing fail or refuse to answer any question when lawfully directed by such commission, board or officer to answer the same.

B. Any person charged with a violation of this section may defend by showing that the act or failure to act complained of was done under circumstances which would have excused such act or failure to act if the same had been in disobedience of an order, direction or command of a court. (Prior code § 15-34)

Chapter 10.08

OFFENSES PERTAINING TO PROPERTY

Sections:

10.08.010 House numbers—Tampering with prohibited.
10.08.020 Playing games or skating in streets.
10.08.030 Stealing farm produce.
10.08.040 Trespass on designated city property prohibited—Exception.
10.08.050 Trespass on city swimming pool enclosures.
10.08.060 Swimming in Franklin Canal.

10.08.010 House numbers—Tampering with prohibited.

No person shall take down, alter, deface, destroy or conceal any house number assigned to or placed upon any building, or place or substitute, or permit to be placed or substituted, an erroneous or improper number upon any building, or allow an erroneous or improper number to be retained upon any building. (Prior code § 15-7)

10.08.020 Playing games or skating in streets.

No person shall play ball, shinny or any other games or skate on or along any street in the city. (Prior code § 15-29)

10.08.030 Stealing farm produce.

No person shall take from any farm, orchard, garden or vineyard of another, without his consent, any fruit, melon or garden vegetable. (Prior code § 15-33)

10.08.040 Trespass on designated city property prohibited—Exception.

A. Any person who shall go into the following described land shall be deemed guilty of a misdemeanor and punished as provided in Sections 1.08.010 through 1.08.030:

12.19 acres more or less out of Tract 2, Parcel 6, Government Parcels, in El Paso County, beginning at the northerly corner of herein described tract, said point being by traverse N. 76° 12′ E. 798.97 feet and S. 13° 48′ E. 780.00 feet from the southwest corner of Unit One, Thomas Manor Addition;

Thence S. 13° 48′ E. 261.09 feet to a point for corner;

Thence S. 19° 15′ W. 604.09 feet to a point for corner;

Thence N. 70° 45′ W. 29.36 feet to a point for corner;

Thence S. 19° 15′ W. 600.00 feet to a point for corner;

Thence N. 70° 45′ W. 100.00 feet to a point for corner;

Thence S. 19° 15′ W. 280.00 feet to a point for corner;

Thence S. 36° 11′ 27″ W. 152.47 feet to a point for corner;

Thence N. 13° 48′ W. 1080.00 feet to a point for corner;

Thence N. 76° 12′ E. 740.00 feet to the point of beginning.

B. This section shall not apply to peace officers, city employees engaged in the performance of their duties, persons doing work on the land under contract with the city, nor to persons (such as physicians, persons rendering aid in case of accidents, or employees of public utilities) who go on the land for the protection of life, health, or property. (Prior code § 15-36.1)

10.08.050 Trespass on city swimming pool enclosures.

No person shall enter or be within the fenced enclosure of any city swimming pool except when the pool is open for operation. This section

shall not apply to peace officers, city employees engaged in the performance of their duties, persons doing work on the property under contract with the city, nor to persons (such as physicians, persons rendering aid in case of accidents, or employees of public utilities) who go on the property for the protection of life, health or property. (Prior code § 15-36.2)

10.08.060 Swimming in Franklin Canal.

No person shall swim, bathe or wade in the Franklin Canal within the city limits; provided, this section shall not apply to any person entering the canal in line of duty in connection with the operation thereof or the making of repairs thereon, or for the purpose of rescuing any person or animal from danger. (Prior code § 15-36)

Chapter 10.12

OFFENSES AGAINST PUBLIC PEACE

Sections:

10.12.010 Firearms—Discharge prohibited.
10.12.020 Firearms—Carrying prohibited.
10.12.030 Loitering in public places.
10.12.040 Loitering on school grounds.
10.12.050 Alcohol prohibited in public places.

10.12.010 Firearms—Discharge prohibited.

A. As used in this section, the following words shall have the meanings ascribed herein:

1. "Firearm" means any device designed, made or adapted to expel a projectile through a barrel by using the energy generated by an explosive or burning substance or any device readily convertible to that use.

2. "Firing range" means any public or private facility at which firearms training or practice, or both, is conducted under controlled circumstances intended to encourage the safe handling of firearms and at which procedures or facilities are in place that are intended to prevent the projectiles discharged from the firearms from causing any damage to persons or property.

B. It is unlawful for a person to discharge a firearm within the city.

C. This section shall not apply to law enforcement officers licensed or commissioned pursuant to federal or state law, to persons holding a security officer commission issued by the Texas Board of Private Investigators and Private Security Agencies, or to members of the armed forces or national guard, while in the performance of their official duties; or to persons engaged in the regular business of keeping and maintaining exotic animals, as defined by the Code, that are in compliance with all applicable provisions of Title 7 of this Code (Animals) and with all applicable standards of care and approved rules and regulations as enforced by the department of animal services, who must discharge a firearm for the sole purpose of protecting people from imminent danger by an escaped animal and there are no other reasonable means to disable the animal to prevent physical harm to human life.

D. It is a defense to prosecution under this section that the person discharged the firearm on a firing range.

E. It is a defense to prosecution under this section that the person discharged the firearm in a manner such that the conduct in question that lead to, caused or resulted, in the discharge of the firearm, is justified under Chapter 9, Texas Penal Code. (Ord. 16821 § 1, 2008; Ord. 14502 § 1, 2000; Ord. 12637 § 1, 1995: Ord. 11045 § 1, 1992: prior code § 15-6)
(Ord. No. 18577, § 1, 9-20-2016)

10.12.020 Firearms—Carrying prohibited.

A. As used in this section, the following words shall have the meanings ascribed herein:

1. "Firearm" means any device designed, made or adapted to expel a projectile through a barrel by using the energy generated by an explosive or burning substance or any device readily convertible to that use.

2. "Handgun" has the meaning assigned by Section 46.01, Penal Code.

3. "Concealed handgun" means a handgun, the presence of which is not openly discernible to the ordinary observation of a reasonable person.

4. "Public meeting of the city" means all meetings, notice of which has been posted pursuant to the Open Meetings Law or city policy, and any other meeting of the mayor or city council or its individual members to which members of the public have been invited to attend.

B. It is unlawful for a person, to carry a firearm at a:

1. Public park, except as otherwise not prohibited by law;

2. Public meeting of the city;

3. Political rally, parade or other official political meeting;

4. Non-firearms-related school, college or professional athletic event.

C. The City Manager, or his designee, is authorized to place or permit the placement of signs on all property and buildings, including any portion thereof, which are owned, leased, controlled, operated, used or managed by the city, which give notice, as provided by Sections 30.05, 30.06, and 46.03, Texas Penal Code, that entry onto the city owned, leased, controlled, operated, used or managed property and buildings, or portions thereof, by persons carrying concealed or openly carried handguns, firearms, or other weapons is forbidden. All city employees, independent contractors of the city, and persons holding a security officer commission issued by the Texas Board of Private Investigators and Private Security Agencies while performing contracted security services for the city are authorized to give a verbal notice, as provided by Section 30.05 and 30.06, Texas Penal Code, that entry onto city owned, leased, controlled, operated, used or managed property and buildings, or portions thereof, by persons carrying concealed handguns or other weapons is forbidden.

All persons, who enter or remain on property or buildings, or any portion thereof, which are owned, leased, controlled, operated, used or managed by the city, contrary to a posted or verbal notice shall be considered trespassers.

D. This section shall not apply to law enforcement officers licensed or commissioned pursuant to federal or state law, persons holding a security officer commission issued by the Texas Board of Private Investigators and Private Security Agencies while in the performance of their official duties, or members of the armed forces or national guard while in the performance of their official duties.

(Ord. 12637 § 2, 1995; Ord. No. 19225, § 1, 8-31-2021)

10.12.030 Loitering in public places.

A. It shall be unlawful for any person:

1. To loiter in or near any street or public place in a manner and under circumstances manifesting the purpose of inducing, enticing, soliciting or procuring another to commit an act of prostitution. Among the circumstances which may be considered in determining whether such purpose is manifested are that the person repeatedly beckons to, stops or attempts to stop, or engages in conversation with, passersby, or repeatedly stops or attempts to stop motor vehicle operators by hailing them or gesturing to them. The violator's conduct, behavior and demeanor must be such as to demonstrate a specific intent to induce, entice, solicit or procure another to commit an act of prostitution;

2. To loiter in or near any street or public place in a manner and under circumstances manifesting the purpose to engage in a drug-related activity contrary to any of the provisions of Chapter 481 of the Texas Health and Safety Code. Among the circumstances which may be considered in determining whether such purpose is manifested are:

a. Such person behaves in such a manner as to raise a reasonable suspicion that he or she is about to engage in or is then engaged in an unlawful drug-related activity, including by way of example only, such person is acting as a "look out,"

b. Such person is physically identified by the officer as a member of a "gang," or association which has as its purpose illegal drug-related activity,

c. Such person transfers small objects or packages for currency in a furtive fashion,

d. Such person takes flight upon the appearance of a police officer,

e. Such person manifestly endeavors to conceal himself or herself and any object which reasonably could be involved in an unlawful drug-related activity,

f. The area involved is by public repute known to be an area of unlawful drug use and trafficking,

g. The premises involved are known to have been reported to law enforcement as a place suspected of drug activity.

The violator's conduct, behavior and demeanor must be such as to demonstrate a specific intent to

engage in drug-related activity contrary to the provisions of Chapter 481 of the Texas Health and Safety Code.

Within six months after the passage of this section, the mayor and the police legislative review committee shall review this section and make recommendations to the city council concerning the effectiveness of and the continuing need for the section. Additionally, the city council will continue to study, evaluate and periodically update this section, as is necessary.

B. Definitions:

1. "Public place" is an area generally visible to public view and includes streets, sidewalks, bridges, alleys, plazas, parks, driveways, parking lots, and buildings open to the general public including those which serve food or drink, or provide entertainment, and the doorways and entrances to buildings or dwellings and the grounds enclosing them. The term "street" includes the legal right-of-way, including, but not limited to, the traffic lanes, curb, sidewalk, whether paved or unpaved, parkway and any grass plots or other grounds found within the legal right-of-way of a street.

2. "Loiter" means to remain, linger, idle to continue and to stay unnecessarily upon the streets in conjunction with the acts prohibited by subsection A of this section.

C. Construction.

1. Severability is intended throughout and within the provisions of the loitering ordinance. If any provision, including inter alia any subsection, part, phrase, term, or word, or the application thereof to any person or circumstance is held invalid or unconstitutional by valid judgement or decree of a court of competent jurisdiction, such holding shall not affect the validity of the remaining portions of this section, and such remaining portions shall remain in full force and effect.

2. It is intended that the loitering ordinance be held inapplicable in such cases, if any, where its application would be unconstitutional. A constitutional construction is intended and shall be given. The city council does not intend to violate the Constitution of the state or the Constitution of the United States of America, and does not intend an interpretation of this section or an application thereof which is absurd, impossible or unreasonable. (Ord. 10929 §§ 1, 2, 1992; Ord. 10878 § 1, 1992; prior code § 15-13)

10.12.040 Loitering on school grounds.

No person shall loiter or loaf upon any public school grounds, or inside any building on such grounds, while such school is not in session; provided, however, this section not prohibit the lawful assembly of any group of persons upon the public school grounds or inside the buildings on such school grounds, when permission therefor shall have been granted by the school authorities; nor shall this section prohibit gatherings upon such grounds or within such buildings in connection with school or other functions held on such grounds or within such buildings. (Prior code § 15-14)

10.12.050 Alcohol prohibited in public places.

A. Definitions. For the purpose of this section the following definitions shall apply unless the context clearly indicates or requires a different meaning:

"Alcoholic beverage" means an alcoholic beverage as defined in the Texas Alcoholic Beverage Code.

"Homeless shelter" for purposes of this Section 10.12.050 of the City Code, means a supervised publicly or privately operated shelter or other facility that is designed to provide temporary living accommodations to individuals who lack a fixed regular and adequate residence.

"Open container" means a container that is no longer sealed.

"Possesses" and "possession" for purposes of this Section 10.12.050 of the City Code, means actual care, custody, control, or management.

"El Paso central business district" means the area contained within the following boundaries:

1. Beginning at the intersection of Interstate 10 and Campbell Street;

2. Proceeding south on Campbell Street to El Paso Times Subdivision; and

3. Including El Paso Times Subdivision to Mills Avenue; and

4. Proceeding east on Mills Avenue to St. Vram Street;

5. South on St. Vram Street to Olive Avenue;

6. West on Olive Avenue to San Antonio Avenue;

7. East on San Antonio Avenue to Cotton Street;

8. South on Cotton Street to Delta Drive:

9. West on Delta Drive to Virginia Street;

10. South on Virginia Street to Third Avenue:

11. West on Third Avenue to Kansas Street:

12. South on Kansas Street to the Rio Grande River (International Boundary/El Paso City Limits);

13. West along the Rio Grande River (International Boundary/El Paso City Limits) to Calleros Court;

14. East on Calleros Court to Chihuahua Street;

15. North on Chihuahua Street to Canal Road:

16. Northwest on Canal Road to the northern property line of Santa Fe Subdivision. Block H. Lot 18;

17. East along an imaginary perpendicular line to its intersection with the southwestern property line of the Atchison, Topeka, & Santa Fe Railroad Reservation;

18. Southeast along the southwestern property line of the Atchison, Topeka & Santa Fe Railroad Reservation to Santa Fe Street;

19. North on Santa Fe Street to Paisano Drive;

20. Northwest on Paisano Drive to a point approximately four hundred fifty feet west of the center line of Coldwell Street:

21. Then north from such point along an imaginary line (that if extended would intersect Missouri Avenue/Franklin Avenue) to its intersection with Interstate 10;

22. East on Interstate 10 to the point of beginning.

The area is more fully described by a map filed with the city clerk.

B. 1. A person commits an offense if he possesses an open container of or consumes an alcoholic beverage in or on any public street, sidewalk, alley or pedestrian way located in the El Paso central business district area as defined in this section; or

2. A person commits an offense if he possesses an open container of or consumes an alcoholic beverage in or on any public street, sidewalk, alley or pedestrian way located within one thousand feet of the property line of a homeless shelter that is not located in a central business district.

C. Section 10.12.050(B) shall not apply if such person:

1. Was attending a special event that was authorized by the city and for which a valid permit or license to sell or serve alcoholic beverages was issued by the Texas Alcoholic Beverage Commission:

2. Was inside a building not owned or controlled by the city;

3. Was inside a residential structure;

4. Was within the area of an establishment licensed by the Texas Alcoholic Beverage Commission for alcohol consumption on the premises.

D. Nothing in this section is intended to prohibit or otherwise control the manufacture, sale, distribution, transportation, or possession of alcoholic beverages, except to the extent allowed by state law.

E. Each violation of Section 10.12.050 shall be punishable by a fine of not more than five hundred dollars.

(Ord. 15016 § 1, 2002; Ord. No. 19256, §§ 1, 2, 11-9-2021)

Chapter 10.16

OFFENSES AGAINST PUBLIC DECENCY

Sections:

10.16.010 Discrimination in places of public accommodation—Declared unlawful.

10.16.020 Discrimination in places of public accommodation—Place of public accommodation defined.

10.16.030 Discrimination in places of public accommodation—Exemptions.

10.16.040 Discrimination in places of public accommodation—Availability of civil remedies.

10.16.050 Discrimination in places of public accommodation—Violation—Penalty.

10.16.070 False representation of being married—Generally.

10.16.080 False representation of being married—Accessories.

10.16.090 Public indecency—Accosting females—Appearing in disguise.

10.16.100 Lewd plays.

10.16.110 Peeping toms.

10.16.010 Discrimination in places of public accommodation—Declared unlawful.

It is unlawful for any person, firm, association or corporation, or any agent, servant or employee thereof within the city, to refuse, deny or withhold from any person, for any reason directly or indirectly relating to the race, gender, gender identity, sexual orientation, color, religion, ethnic background or national origin of such person, any of the accommodations, advantages, facilities or services offered to the general public by place of public accommodation. (Ord. 15410, 2003: Prior code § 15-2.1(a))

10.16.020 Discrimination in places of public accommodation—Place of public accommodation defined.

The term "place of public accommodation" includes every business within the city which is open to the general public and offers, for compensation, any product, service or facility. The term "place of public accommodation" includes, but is not limited to, all taverns, hotels, motels, restaurants, or any place where food or beverages are sold, retail and wholesale establishments, hospitals, theaters, motion picture houses, museums, bowling alleys, golf courses, billiard parlors, gas stations, garages, restrooms, baths, barbershops, beauty parlors, swimming pools, skating rinks, meeting rooms and hall, and all public conveyances operated on land, air or water as well as the stations or terminals thereof. (Prior code § 15-2.1(b))

10.16.030 Discrimination in places of public accommodation—Exemptions.

No place shall be deemed to be a place of public accommodation which is owned or operated by a bona fide private club or institution whose merchandise, facilities or services are restricted to its members and their guests (provided such club or institution is not conducted for the purpose of evading Sections 10.16.010 through 10.16.050), nor by any bona fide religious, racial, denominational or ethnic institution or organization not organized for profit, nor by any organization operated for charitable or educational purposes and not organized for profit. (Prior code § 15-2.1(c))

10.16.040 Discrimination in places of public accommodation—Availability of civil remedies.

This section shall neither add to nor detract from any civil remedies now available to persons subject to racial or religious discrimination. (Prior code § 15-2.1(d))

10.16.050 Discrimination in places of public accommodation—Violation—Penalty.

Any person violating any provision of Sections 1.16.010 through 10.16.040 shall be deemed guilty of a misdemeanor and punished by a fine not exceeding two hundred dollars. (Prior code § 15-2.1(e))

10.16.070 False representation of being married—Generally.

No persons, not then husband and wife shall register as husband and wife or in any manner represent themselves to be husband and wife, at any hotel, building, apartment house, boarding or rooming house, residence or any other place. (Prior code § 15-4)

10.16.080 False representation of being married—Accessories.

No person shall knowingly consent to such false registration or knowingly furnish to any male and female not husband and wife any room, bed or other facilities for sexual intercourse, or falsely register or introduce any persons as husband and wife, or knowingly and falsely represent any persons to be husband and wife. (Prior code § 15-5)

10.16.090 Public indecency—Accosting females—Appearing in disguise.

No person shall exhibit or expose himself naked, or disguised, or in any indecent or offensive manner to any person passing in the public places of the city, or to persons living in the neighborhood, or rudely, insultingly or offensively accost any female, or appear in the streets or public places in any indecent or lewd dress, or relieve the calls of nature in any place exposed to the public sight or gaze or upon any public street or plaza. (Prior code § 15-10)

10.16.100 Lewd plays.

No person shall exhibit or perform, or permit to be exhibited or performed upon any premises under his management, any immoral or lewd play or other representation. (Prior code § 15-11)

10.16.110 Peeping toms.

No person shall look, peek or peer into any private residence, public building, hotel, apartment house or tourist camp, where people are living, whether on private or public property, in any manner to the annoyance or disturbance of the inhabitants thereof. (Prior code § 15-28)

Chapter 10.20

OFFENSES BY OR AGAINST MINORS

Sections:

10.20.010 Curfew—Definitions.

10.20.020 Curfew—Offenses.

10.20.030 Curfew—Affirmative defenses.

10.20.040 Curfew—Enforcement.

10.20.050 Curfew—Violation—Penalty.

10.20.052 Curfew—Construction.

10.20.054 Curfew—Review of ordinance.

10.20.060 Sale of glue—Glue sniffing prohibited.

10.20.010 Curfew—Definitions.

In this chapter:

"Chief of police" means the chief of police of the city or a designated representative.

"Curfew hours" means the period beginning at eleven p.m. and ending at six a.m. of the following day. The time shall be determined by the prevailing standard of time, whether Mountain Standard Time or Mountain Daylight Savings Time, generally observed at that hour by the public in El Paso. The time then observed in the El Paso Police Department's communications divisions shall be prima facie evidence of the true and correct time.

"Direct route" means the shortest path of travel through a public place to reach a final destination without any detour or stop along the way.

"Emergency" means, but is not limited to, a fire, a natural disaster, an automobile accident, or any situation requiring immediate action to prevent serious bodily injury or loss of life.

"Establishment" means any privately owned place of business operated for a profit to which the public is invited, including but not limited to any place of amusement or entertainment.

"Minor" means a person who is under the age of seventeen years of age.

"Parent" means a person who is:

1. A natural or adoptive parent or step-parent of the minor;

2. A court-appointed guardian of the minor or the public or private agency with whom the minor has been placed by a court; or

3. A custodian, at least eighteen years of age, and with whom the minor resides.

"Public place" means any street, alley, highway, sidewalk, driveway, yard, playground, park, plaza, building or other place used by or open to the public. The term "street" includes the legal right-of-way, including but not limited to the traffic lanes, curb, sidewalk, whether paved or unpaved, parkway and any grass plots or other grounds found within the legal right-of-way of a street.

"Remain" means to:

1. Linger, stop, or stay for any length of time, or to travel or move upon a street; or

2. Fail to leave premises when requested to do so by a police officer or the owner, operator or other person in control of the premises. (Ord. 16309 § 1, 2006: Ord. 12738 § 1, 1996: Ord. 10730 § 1, 1991: prior code § 15-15)

(Ord. No. 18726, 9-19-2017; Ord. No. 19082, §§ 4, 5, 8-18-2020)

10.20.020 Curfew—Offenses.

A. A minor commits an offense if he remains in any public place or on the premises of any establishment within the city limits during curfew hours.

B. A parent of a minor commits an offense if he knowingly permits, or by insufficient control allows, the minor to remain in any public place within the city limits during curfew hours.

C. A parent of a minor commits an offense if he knowingly fails to respond within two hours of receipt of any notification by a law enforcement officer to take custody of a minor taken into custody for violation of this section, unless reasonably hindered from doing so. (Ord. 16309 § 2, 2006: Ord. 12738 § 2, 1996: Ord. 10730 § 2, 1991: prior code § 15-16)

(Ord. No. 18726, 9-19-2017; Ord. No. 19082, §§ 4, 5, 8-18-2020)

10.20.030 Curfew—Affirmative defenses.

A. It is a defense to prosecution under Section 10.20.020 that the minor was:

1. Accompanied by the minor's parent;

2. On an errand at the direction of the minor's parent, was using a direct route, and was carrying a written communication signed by the parent stating a brief description of the errand and that the named minor has consent to perform such errand;

3. In a motor vehicle engaged in interstate travel, beginning, ending or passing through El Paso;

4. Engaged in an employment activity, including but not limited to newspaper delivery, and was using a direct route;

5. Involved in an emergency;

6. On the driveway or yard of the minor's residence or on the sidewalk abutting the minor's residence;

7. On the sidewalk abutting the residence of a next-door neighbor if the neighbor did not complain to the police officer about the minor's presence;

8. Attending an official school, civic or religious activity or returning home by a direct route from an official school, civic or religious activity;

9. Attending or traveling directly to or from an activity involving the exercise of First Amendment rights protected by the United States Constitution, including the free exercise of religion, freedom of speech, and the right of assembly;

10. Married or had been married or had disabilities of minority removed in accordance with Chapter 31 of the Texas Family Code; or

11. Accompanied by a person at least twenty-one years of age, and the minor was carrying a written communication signed by the parent stating the name of the person who is at least twenty-one years of age and accompanying the minor and that the named minor has consent to be in the company of that named person.

B. Each of the foregoing defenses, and their several limitations, are severable, as hereinafter provided but reemphasized here. (Ord. 12738 § 3, 1996: Ord. 10730 § 3, 1991: prior code § 15-17) (Ord. No. 19082, §§ 4, 5, 8-18-2020)

10.20.040 Curfew—Enforcement.

A. A police officer, upon finding a minor in violation of Section 10.20.020 shall take the necessary steps to determine whether the minor is remaining in a public place in the city limits in violation of Section 10.20.020 and whether any defenses under Section 10.20.030 may apply to the actions or activities of the minor. If the officer has probable cause to believe that the minor is in violation of Section 10.20.020, the officer may take appropriate enforcement action against the minor in accordance with the applicable provisions of the Juvenile Justice Code, the Texas Penal Code, and this chapter.

B. If a minor is taken into custody under this section, the officer shall, without unnecessary delay:

1. Release the minor to the minor's parent, guardian or custodian;

2. Take the minor before a municipal court to answer the charge; or

3. Take the minor to a place designated by the chief of police as a juvenile curfew processing office.

C. When a minor is issued a citation or taken into custody for a violation of Section 10.20.020, the police department may, by certified mail return receipt requested, notify a parent of the minor that the minor has violated Section 10.20.020 and include a warning that any subsequent violation may result in prosecution of the minor and the parent under this section. (Ord. 12738 § 4, 1996: Ord. 10730 § 4, 1991: prior code § 15-18) (Ord. No. 19082, §§ 4, 5, 8-18-2020)

10.20.050 Curfew—Violation—Penalty.

A. Any minor who violates Section 10.20.020 of this code shall be guilty of a misdemeanor and shall be punished by a fine as provided in Sections 1.08.010 through 1.08.030 and may be subject to appropriate action by a juvenile court in accor-

dance with applicable provisions of the Juvenile Justice Code, the Texas Penal Code, and this chapter.

B. A parent of a minor who violates any provision of Section 10.20.020 shall be guilty of a misdemeanor and shall be punished by a fine as provided in Sections 1.08.010 through 1.08.030 of this code. (Ord. 12738 § 5, 1996: Ord. 10730 § 5, 1991: prior code § 15-19)
(Ord. No. 19082, §§ 4, 5, 8-18-2020)

10.20.052 Curfew—Construction.

A. Severability is intended throughout and within the provisions of the curfew ordinance. If any provision, including inter alia any exception, defense, subsection, part, phrase, term or word, or the application thereof to any person or circumstance is held invalid or unconstitutional by valid judgment or decree of a court of competent jurisdiction, such holding shall not affect the validity of the remaining portions of the ordinance codified in this chapter, and such remaining portions shall remain in full force and effect.

B. It is intended that the curfew ordinance be held inapplicable in any cases, if any, where its application would be unconstitutional. A constitutional construction is intended and shall be given. The city council does not intend to violate the Constitution of the state or the Constitution of the United States of America, and does not intend an interpretation of the ordinance or an application thereof which is absurd, impossible or unreasonable. (Ord. 12738 § 6, 1996: Ord. 10730 § 6, 1991)
(Ord. No. 19082, §§ 4, 5, 8-18-2020)

10.20.054 Curfew—Review of ordinance.

The city council finds that the review of this chapter done by the city immediately prior to and in conjunction with the passage of the readoption and amendments made herein satisfies the requirements set forth in Section 370.002, Texas Local Govt Code, for certain required reviews of curfew ordinances by home-rule municipalities. The dates for the statutorily required ordinance review every third year thereafter shall be based upon this readoption. (Ord. 12738 § 7, 1996: Ord. 10730 § 7, 1991)
(Ord. No. 19082, §§ 4, 5, 8-18-2020)

10.20.060 Sale of glue—Glue sniffing prohibited.

A. No person shall sell, offer for sale, deliver or give to any person under the age of seventeen years, except to his brother, sister, son, daughter or legal ward, any glue, cement, paint, spray paint, paint thinner, lacquer, commercial solvent, or similar substance, containing one or more volatile solvents of one of the following generic types: aromatics, alcohols, ketones, esters, ethers, halogenated hydrocarbons, isocyanates, tetrahydro furans, diethyl sulfates, alkylonitriles and ethelene oxides.

B. The provisions of subsection A of this section shall not apply when one of the substances named therein, or a similar substance, is sold, offered for sale, delivered or given simultaneously with and as part of a kit used for the construction of model airplanes, model boats, model automobiles, model trains, or other similar models.

C. No person shall smell, sniff or inhale any glue, cement, paint, spray paint, paint thinner, lacquer, commercial solvent, or similar substance containing one or more volatile solvents of one of the generic types named in subsection A of this section, for the purpose of intoxication, or in such a way that intoxication results. "Intoxication" as used in this section means a condition in which the mental capacity is impaired, or the mental or physical effects of the toxic substance can be detected by ordinary observation. (Prior code § 15-20)

Chapter 10.24

MISCELLANEOUS OFFENSES

Sections:

10.24.010 Ice manufactured outside city.

10.24.020 Poison—Placing on lands of another.

10.24.030 Abandoned refrigerators.

10.24.040 Sex offender residency regulation.

10.24.050 Sun Metro priority seating.

10.24.010 Ice manufactured outside city.

It is unlawful to sell, offer for sale, or distribute in the city any ice manufactured outside the city, except ice manufactured wholly from distilled water. (Prior code § 15-7.1)

10.24.020 Poison—Placing on lands of another.

Whoever shall wilfully place poison on the lands owned or in possession of another with intent to injure the owner or possessor thereof in any manner whatsoever, and without the consent of the owner or possessor, shall be deemed guilty of a misdemeanor and punished as provided in Sections 1.08.010 through 1.08.030. (Prior code § 15-29.1)

10.24.030 Abandoned refrigerators.

A. No person shall leave or permit to remain outside of any dwelling, building or other structure, or within any unoccupied or abandoned building, dwelling or other structure under his control, in a place accessible to children, any abandoned, unattended or discarded icebox, refrigerator or other container which has an airtight door or lid, or snap lock or other locking device which may not be released from the inside, without first removing the door or lid, snap lock or other locking device from said icebox, refrigerator or container.

B. Any person violating any provision of this section shall be deemed guilty of a misdemeanor and punished by a fine not exceeding five hundred dollars; and each day's violation shall constitute a separate offense. (Ord. 9430 § 5, 1988; prior code § 15-29.2)

10.24.040 Sex offender residency regulation.

A. Definitions. For the purposes of this chapter:

1. "Child sex offender" means any offender subject to registration under state law, who has been convicted or received an order of deferred adjudication for a "sexual offense" involving a minor.

2. "Habitual offender" means any offender subject to registration under state law, who has for a "sexually violent offense" been convicted two or more times received an order of deferred adjudication two or more times, or been convicted and received an order of deferred adjudication or any combination thereof and is required to verify every ninety days in accordance with the Texas Code of Criminal Procedure, Article 62.058.

3. "Minor" means a person who is under the age of seventeen years of age.

4. "Permanent residence" means a place where a person abides, lodges, or resides for fourteen or more consecutive days.

5. "Temporary residence" means a place where a person abides, lodges, or resides for a period of fourteen or more days in the aggregate during any calendar year and which is not the person's permanent address, or a place where a person routinely abides, resides, or lodges for a period of four or more consecutive or nonconsecutive days in any month and which is not the person's permanent residence.

B. Offenses. For each person required to register on the Texas Department of Public Safety's Sex Offender Database (the "Database") because they are a "Habitual Offender" or a "Child Sex Offender," it is unlawful for that person to establish a permanent residence or temporary residence within one thousand feet of any premise where children commonly gather, which, for purposes of this chapter, shall be a city park, private or public

school, child care facility or daycare center as such terms are defined in Title 20 of the city code for the city of El Paso, Texas.

C. Evidentiary Matters; Measurements.

1. It shall be prima facie evidence that this section applies to such a person if that person's record appears on the database and the database indicates that the person is required to verify every ninety days in accordance with the Texas Code of Criminal Procedure, Section 62.058. For purposes of this chapter, that person is classified as a "Habitual Offender."

2. It shall be prima facie evidence that this section applies to such a person if that person's record appears on the database and the database indicates that the person is subject to registration for an offense involving a minor. For purposes of this chapter, that person is classified as a "Child Sex Offender."

3. For the purposes of determining the minimum distance separation, the requirement shall be measured by following a straight line from the outer property line of the permanent or temporary residence to the nearest property line of the premises where children commonly gather, as described hereinabove, or, in the case of multiple residences on one property, measuring from the nearest property line of the premises to the nearest property line of the premises where children commonly gather, as described herein.

D. Affirmative Defenses. It is an affirmative defense to prosecution that any of the following conditions apply:

1. The person required to register on the database established the permanent or temporary residence and has complied with all of the sex offender registration laws of the state of Texas, prior to the date of the adoption of the ordinance codified in this chapter.

2. The premises where children commonly gather, as specified herein, within one thousand feet of the permanent or temporary residence of the person required to register on the database was opened after the person established the permanent or temporary residence and complied with all sex offender registration laws of the state of Texas.

3. The information on the database is incorrect, and, if corrected, this section would not apply to the person who was erroneously listed on the database.

E. Any person who violates any of the provisions of this chapter shall be guilty of a misdemeanor and upon conviction thereof shall be fined an amount not to exceed five hundred dollars for each offense. Each day that a violation is permitted to exist shall constitute a separate offense.

F. If any section, subsection, sentence, clause or phrase of the ordinance codified in this chapter is for any reason held to be unconstitutional, such holding shall not affect the validity of the remaining portions of this chapter.

G. Any violation of this chapter can be enjoined by a suit filed in the name of the city of El Paso in a court of competent jurisdiction, and this remedy shall be in addition to any penal provision in the ordinance codified in this chapter or in the city code of the city of El Paso.

H. Exemptions from the terms of this chapter may be granted where, owing to special conditions, or when a literal enforcement of the provisions of this chapter will result in an undue hardship. A sex offender shall have the right to make an appeal for an exemption from a provision of this chapter by making a request to the chief of police, in writing, stating why an exemption should be granted. The decision of the chief of police, which may be made based solely on the written appeal without further hearing, shall be final. Any subsequent offense as described in subsection B of this section may result in revocation of the exemption by the chief of police. (Ord. 16599 § 1, 2007) (Ord. No. 018876, 11-27-2018)

10.24.050 Sun Metro priority seating.

A. "Priority seating" or "priority seats" is defined as seats or areas of the bus designated as priority seating for elderly and/or disabled per-

sons, including other seats as necessary, and fold-down or moveable seats located in a wheelchair securement location.

B. Pursuant to the Federal Code of Regulations and the Federal Transit Administration, elderly and disabled persons who meet the established qualifications shall have preference to occupy priority seating while on Sun Metro vehicles. Passengers not meeting the qualifications for priority seating who are occupying a seat designated as priority seating shall relinquish such seat upon being informed that a qualified person desires to occupy such seat.

C. A violation of any provision of this section is a misdemeanor offense punishable by a fine not to exceed five hundred dollars per violation.
(Ord. No. 18548, § 1, 8-9-2016)

Title 11

(RESERVED)

Title 12

VEHICLES AND TRAFFIC

Chapters:

12.04	General Provisions and Definitions
12.08	Administration and Enforcement
12.12	Authorized Emergency Vehicles
12.16	Accident Reports
12.20	Traffic-Control Devices
12.21	Photographic Traffic Signal Enforcement System
12.22	Wireless Communications Devices
12.24	Turning Movements
12.28	Speed Limits
12.30	Temporary Traffic Control
12.32	Pedestrians
12.36	One-Way Streets
12.40	Size, Weight and Class Restrictions
12.42	Restrictions for Trucks Upon a Portion of Interstate Highway 10
12.44	Stopping, Standing and Parking Generally
12.46	Mobile Food Vendors
12.48	Loading Zones, Bus, Taxi Stands, and Rideshare Zones
12.52	Parking Restrictions on Certain Streets
12.54	Towing Regulations and Fees
12.56	Parking Meters
12.58	Parking Benefit Districts
12.60	Through Streets, Stop and Yield Intersections
12.64	Traffic Prohibited on Certain Streets
12.68	Visibility Obstructions
12.72	Railroad Trains
12.76	Bicycles
12.77	Golf Carts for Holiday Parcel Delivery
12.78	International Bridges
12.80	Miscellaneous Traffic Regulations
12.84	Penalty

12.85 **Parking Violations Bureau**

12.88 **Schedules**

12.90 **Parking Restrictions Along Streetcar Route**

Chapter 12.04

GENERAL PROVISIONS AND DEFINITIONS

Sections:

12.04.010 Short title.
12.04.020 Definitions—Generally.
12.04.030 Alley.
12.04.040 Bicycle.
12.04.050 Bulk oil station.
12.04.060 Central traffic district.
12.04.070 Commercial vehicle.
12.04.080 Curb loading zone.
12.04.090 Five points traffic district.
12.04.100 Flammable liquids.
12.04.110 Legal holidays.
12.04.120 Median strip.
12.04.125 Motor assisted scooter.
12.04.130 No parking zone.
12.04.140 Official time standard.
12.04.150 Park.
12.04.152 Piedras-Alameda district.
12.04.155 South El Paso district.
12.04.160 Stop.
12.04.170 Stop, stopping or standing.
12.04.180 Traffic division.
12.04.190 Traffic engineer.
12.04.200 Definitions—Words not defined.
12.04.210 Applicability of provisions—Operation of government vehicles.
12.04.220 Applicability of provisions—Persons propelling pushcarts, riding bicycles or animals, or driving animal-drawn vehicles.
12.04.230 Obedience to police officers required.
12.04.240 Violation of title provisions designated a misdemeanor.

12.04.010 Short title.

This title may be known and cited as the "traffic ordinance." (Prior code § 20-1)

12.04.020 Definitions—Generally.

The following words and phrases when used in this title shall for the purpose of this title have the meanings respectively ascribed to them in Sections 12.04.030 through 12.04.190. (Prior code § 20-2 (part))

12.04.030 Alley.

"Alley" means any public or private passageway or street as herein defined which is open to traffic and generally used as a means of reaching the rear end of lots or buildings. (Prior code § 20-2(7))

12.04.040 Bicycle.

"Bicycle" means a device, excluding a moped, that is capable of being ridden solely using human power and has either:

A. Two tandem wheels at least one of which is more than fourteen inches in diameter;

B. Three wheels, two of which are in parallel, and at least one of the three wheels is more than fourteen inches in diameter; or

C. Any number of wheels and adaptive technology that allows the device to be ridden by a person with a disability.

(Prior code § 20-2(2); Ord. No. 19268, § 1, 12-7-2021)

12.04.050 Bulk oil station.

"Bulk oil station" means any place where flammable liquids are stored and at least seventy-five percent of such flammable liquids are thereafter distributed therefrom in tank trucks. (Prior code § 20-2(13))

12.04.060 Central traffic district.

All streets and portions of streets within the central traffic district are described as follows:

All that area from the west curb of Kansas Street from Missouri Street to Paisano, north curb

of Paisano from Kansas Street to Santa Fe Street, east curb of Santa Fe Street from Paisano to Missouri Street, south curb of Missouri from Santa Fe Street to Kansas Street. (Prior code § 20-2(10))

12.04.070 Commercial vehicle.

"Commercial vehicle" means every vehicle designed, maintained or used primarily for the transportation of property. (Prior code § 20-2(1))

12.04.080 Curb loading zone.

"Curb loading zone" means a space adjacent to a curb reserved for the exclusive use of vehicles during the loading or unloading of passengers or materials. (Prior code § 20-2(8))

12.04.090 Five points traffic district.

"Five points traffic district" means all streets and portions of streets within the area described as follows:

All that area bounded by the north property line of Pershing Drive, the east property line of San Marcial Street, the north property line of U. S. Interstate highway number 10, and the west property line of Cedar Street. (Prior code § 20-2(11))

12.04.100 Flammable liquids.

"Flammable liquids" is defined the same as it is defined in the provisions of this code regulating the installation and operation of refineries and wholesale or bulk oil stations handling flammable liquids within the city, and shall include all class 1, 2 and 3 liquids and all liquefied petroleum gases. (Prior code § 20-2(12))

12.04.110 Legal holidays.

"Legal holiday" shall be as defined in section 1.04.010 of this Code. (Ord. 9287, § 1, 1988; prior code § 202(5))
(Ord. No. 17338, § 4, 6-1-2010)

12.04.120 Median strip.

"Median strip" means an intervening strip, physical barrier or clearly indicated dividing section which separates a street into two or more roadways. (Prior code § 20-2(15))

12.04.125 Motor assisted scooter.

"Motor assisted scooter" means a self-propelled device with: (1) at least two wheels in contact with the ground during operation; (2) a braking system capable of stopping the device under typical operating conditions; (3) a gas or electric motor not exceeding forty cubic centimeters; (4) a deck designed to allow a person to stand or sit while operating the device; and (5) the ability to be propelled by human power alone. This term does not include a moped, motorcycle, electric bicycle, motor-driven cycle, a motorized mobility device, a pocket bike, minimotorbike, electric personal assistive mobility device, or a neighborhood electric vehicle all of which are defined in the Texas Transportation Code.
(Ord. No. 18898, § 1, 1-8-2019)

12.04.130 No parking zone.

"No parking zone" means a space adjacent to a curb in which no parking shall be allowed for any purpose. Such zones shall be marked by painting the curb yellow, or by appropriate signs, or by both such signs and yellow curb markings. (Prior code § 20-2(9))

12.04.140 Official time standard.

Whenever certain hours are named herein they shall mean mountain standard time or daylight saving time as may be in current use in this city. (Prior code § 20-2(4))

12.04.150 Park.

"Park" when prohibited means any stopping or standing of a vehicle, whether occupied or not, otherwise than temporarily for the purpose of and while actually engaged in loading or unloading passengers. (Prior code § 20-2(3)(c))

12.04.152 Piedras-Alameda district.

All streets and portions of streets within the Piedras-Alameda district are described as follows:

All the area from the east curb of Cotton Street from Paisano Drive to Texas Avenue, south

curb of Texas-Alameda from Cotton Street to Piedras Street, west curb of Piedras Street from Alameda Avenue to Paisano Drive, north curb of Paisano Drive from Piedras Street to Cotton Street.

All the area from the east curb of Piedras Street from Alameda Avenue to Paisano Drive, south curb of Alameda Avenue from Piedras Street to Copia Street, west curb of Copia Street from Alameda Avenue to Paisano Drive, north curb of Paisano Drive from Copia Street to Piedras Street.

All the area from the east curb of Piedras Street from Alameda Avenue to Gateway Boulevard East, south curb of Gateway Boulevard East from Piedras Street to Copia Street, west curb of Copia Street from Gateway Boulevard East to Alameda Avenue, north curb of Alameda Avenue from Copia Street to Piedras Street.

All the area from the east curb of Copia Street from Paisano Drive to Alameda Avenue, south curb of Alameda Avenue from Copia Street to Valverde Street, west curb of Valverde from Alameda Avenue to Paisano Drive, north curb of Paisano Drive from Valverde Street to Copia Street.

All the area from the east curb of Copia Street from Alameda Avenue to Gateway Blvd. East, south curb of Gateway Boulevard East from Copia Street to Raynolds Street, west curb of Raynolds Street from Gateway Boulevard East to Alameda Avenue, north curb of Alameda Avenue from Raynolds Street to Copia Street. (Ord. 11071 § 1, 1992)

12.04.155 South El Paso district.

All streets and portions of streets within the South El Paso district are described as follows:

All the area from the east curb of Park Street from Paisano Drive to the Boarder Highway, south curb of Paisano Drive from Park Street to Santa Fe Street, east curb of Santa Fe Street from Paisano Drive to the Border Highway, north curb of the Border Highway from Santa Fe Street to Park Street.

All the area from west curb of Canal Street from Seventh Street to Bandera Street, south curb of Seventh Street from Canal Street to Charles Street, west curb of Charles Street from Seventh Street to Bandera Street, north curb of Bandera Street from Charles Street to Canal Street. (Ord. 10957 § 1, 1992)

12.04.160 Stop.

"Stop" when required means complete cessation of movement. (Prior code § 20-2(3)(a))

12.04.170 Stop, stopping or standing.

"Stop," "stopping" or "standing" when prohibited means any stopping or standing of a vehicle, whether occupied or not, except when necessary to avoid conflict with other traffic or in compliance with the directions of a police officer or traffic-control sign or signal. (Prior code § 20-2(3)(b))

12.04.180 Traffic division.

"Traffic division" means the traffic division of the police department of this city, or in the event a traffic division is not established, then such term whenever used herein shall be deemed to refer to the police department of this city. (Prior code § 20-2(6))

12.04.190 Traffic engineer.

"Traffic engineer" means the employee designated by the city manager who is trained and qualified to perform the duties of the traffic engineer as set forth within this Code. (Ord. 16140 § 1, 2005: Ord. 13152 § 97, 1997: prior code § 20-2(14)) (Ord. No. 17394, § 1, 8-24-2010, eff. 9-1-2010)

12.04.200 Definitions—Words not defined.

A. Whenever any words and phrases used herein are not defined herein, but are defined in the state laws, such definitions shall be deemed to apply to such words and phrases used herein.

B. Whenever any words and phrases used herein are not defined in the state laws, but are defined in any traffic ordinance of this city, such definition shall be deemed to apply to such words and phrases used herein. (Prior code § 20-3)

12.04.210 Applicability of provisions—Operation of government vehicles.

The provisions of this title shall apply to the driver of any vehicle owned by, or used in the service of the United States government, this state, county or the city, and it is unlawful for any such driver to violate any of the provisions of this title, except as otherwise permitted in this title or by state law. (Prior code § 20-14)

12.04.220 Applicability of provisions—Persons propelling pushcarts, riding bicycles or animals, or driving animal-drawn vehicles.

Every person propelling a push cart or riding a bicycle or an animal upon a roadway, and every person driving any animal-drawn vehicle, shall be subject to the provisions of this title applicable to the driver of any vehicle, except those provisions which by their very nature can have no application. (Prior code § 20-15)

12.04.230 Obedience to police officers required.

No person shall knowingly fail or refuse to comply with any lawful order or direction of any police officer invested by law with authority to direct, control or regulate traffic. (Ord. 9454, 1988; prior code § 20-13)

12.04.240 Violation of title provisions designated a misdemeanor.

It is a misdemeanor for any person to do any act forbidden, or fail to perform any act required, in this title. (Prior code § 20-12)

Chapter 12.08

ADMINISTRATION AND ENFORCEMENT

Sections:

12.08.010 Traffic division—Established.

12.08.020 Traffic division—Duties.

12.08.030 Traffic division—Recordkeeping.

12.08.040 Traffic division—Accident investigation duties.

12.08.045 Reserved.

12.08.050 Traffic division—Accident reports.

12.08.060 Traffic division—Accident studies.

12.08.070 Traffic engineer—Powers and duties.

12.08.080 Traffic violations bureau—Established—Duties.

12.08.090 Traffic violations bureau—Procedures.

12.08.100 Traffic violations bureau—Bond acceptance, receipt issuance and recordkeeping duties.

12.08.110 Traffic violations bureau—Recordkeeping and report requirements.

12.08.120 Police and fire officials authority.

12.08.140 Authorized parking enforcement agents—Parking citation issuance authority.

12.08.190 Warrants—Recordkeeping.

12.08.191 Refusal to register motor vehicles due to outstanding warrants fee.

12.08.200 Forwarding records of conviction.

12.08.210 Records—Auditing.

12.08.220 Impounding vehicles.

12.08.230 Disabled-parking enforcement volunteers—Parking citation issuance authority.

12.08.010 Traffic division—Established.

There is established in the police department of this city a traffic division to be under the control of an officer of police designated by and directly responsible to the chief of police. (Prior code § 20-4)

12.08.020 Traffic division—Duties.

It shall be the duty of the traffic division with such aid as may be rendered by other members of the police department to enforce the traffic regulations of this city and all of the state laws applicable to traffic in this city, to make arrest for traffic violations, to investigate accidents and to cooperate with the traffic engineer and other officers of the city in the administration of the traffic laws and in developing ways and means to improve traffic conditions, and to carry out those duties specially imposed upon such division by this title and the traffic ordinance of this city, and laws of the state regulating same. (Prior code § 20-5)

12.08.030 Traffic division—Recordkeeping.

A. The police department or the traffic division thereof shall keep a record of all violations of the traffic ordinances of this city or of the state traffic laws in this city of which any person has been charged, together with a record of the final disposition of all such alleged offenses. Such record shall be so maintained as to show all types of violations and the total of each. Such record shall accumulate during at least a five-year period and from that time on the record shall be maintained complete for at least the most recent five-year period.

B. All forms for records of violations and notices of violations shall be serially numbered. For each month and year a written record shall be kept available to the public showing the disposal of all such forms. (Prior code § 20-6)

12.08.040 Traffic division—Accident investigation duties.

It shall be the duty of the traffic division, assisted by other police officers of the department, to investigate traffic accidents, to arrest and to assist in the prosecution of those persons charged with violations of law causing or contributing to

such accidents. (Prior code § 20-7)

12.08.045 Reserved.

Editor's note—Ord. No. 17690, § 1, adopted December 6, 2011, repealed § 12.08.045, which pertained to El Paso Zoo and surrounding area—Parking citation issuance authority and derived from Ord. 11514, 1993.

12.08.050 Traffic division—Accident reports.

The traffic division shall maintain a suitable system of filing traffic accident reports. Accident reports or cards referring to them shall be filed alphabetically by location. Such reports shall be available for the use and information of the traffic engineer. (Prior code § 20-9)

12.08.060 Traffic division—Accident studies.

Whenever the accidents at any particular location become numerous, the traffic division shall cooperate with the traffic engineer in conducting studies of such accidents and determining remedial measures. (Prior code § 20-8)

12.08.070 Traffic engineer—Powers and duties.

A. It shall be the general duty of the traffic engineer, subject to the approval of the city council, to regulate traffic under the provisions of this title, to establish, change, remove or prohibit, as conditions may require, boulevard stops, pedestrian lanes, parking spaces, parking time limits, safety and loading zones, "U" turns, right and left hand turns, traffic lanes, public carrier stands, and other necessities of city traffic all in the interest of public safety and convenience, and based upon engineering investigations of traffic conditions pertinent thereto; provided, that nothing in this section shall be construed as conferring upon the office of traffic engineer any duties or authority concerning traffic law enforcement.

B. The traffic engineer may test all forms of traffic-control devices or regulations under actual conditions of traffic.

C. The chief of police is empowered to enforce temporary or experimental regulations to cover emergencies or special conditions. No such temporary or experimental regulation shall remain in effect for more than one hundred and twenty days.

D. The traffic engineer may, as considered necessary, establish construction site speed zones for road and highway construction projects within the corporate limits of the city. Any change from the speed limit in effect prior to commencement of construction shall be only for the duration of the road or highway construction project. The chief of police is empowered to enforce such speed limits for the duration of the construction project.

E. Notwithstanding the prohibitions contained in this title, the traffic engineer may establish alternate routes for large vehicles as defined in Sections 12.40.040, 12.40.050 and 12.40.060 when necessary for road and highway construction projects within the corporate limits of the city. Any alternate route created pursuant to this subsection shall be in effect only for the duration of the road or highway construction project. (Ord. 11512 § 1, 1993; prior code § 20-10)

12.08.080 Traffic violations bureau—Established—Duties.

A. There shall be established in the municipal court, and staffed by the civil service personnel attached to the court, a traffic violations bureau to assist the court with the clerical work or traffic cases. All records heretofore kept by the traffic violations bureau of the police department shall be transferred to the bureau created, which shall be headed by the clerk of the corporation court.

B. The traffic violations bureau shall accept bonds for specified offenses under the traffic laws in accordance with schedules authorized and approved by the municipal courts, and only the judges of the courts shall have authority to change the amount of the bonds from the amounts specified in the schedules. (Prior code § 20-22)

12.08.090 Traffic violations bureau—Procedures.

The traffic violations bureau shall follow such procedure as may be prescribed by the ordinances

of this city or as may be required by any laws of this state. (Prior code § 20-25)

12.08.100 Traffic violations bureau—Bond acceptance, receipt issuance and recordkeeping duties.

The traffic violations bureau shall accept designated bonds, issue receipts, and shall keep an easily accessible record of all violations. (Prior code § 20-23)

12.08.110 Traffic violations bureau—Recordkeeping and report requirements.

The traffic violations bureau shall keep records and submit summarized monthly reports to the clerk of the municipal court of all notices issued and arrests made for violations of the traffic laws and ordinances, and of all bonds collected by the traffic violations bureau (bond officer) and shall keep a summary record of the final disposition or present status of every traffic case as shown on the dockets of the municipal courts. Such records shall be so maintained as to show all types of traffic violations and the totals of each, as well as any and all other necessary and pertinent information required for the proper and efficient maintaining of all such records. (Prior code § 20-24)

12.08.120 Police and fire officials authority.

A. It shall be the duty of the officers of the police department, or such officers as are assigned by the chief of police, to enforce all traffic laws of this city and all of the state laws applicable to traffic in this city.

B. Officers of the police department or such officers as are assigned by the chief of police are authorized to direct all traffic by voice, hand or signal in conformance with traffic laws; provided, that in the event of a fire or other emergency or to expedite traffic or to safeguard pedestrians, officers of the police department may direct traffic as conditions may require notwithstanding the provisions of the traffic laws.

C. Officers of the fire department, when at the scene of a fire, may direct or assist the police in directing traffic thereat or in the immediate vicinity. (Prior code § 20-11)

12.08.140 Authorized parking enforcement agents—Parking citation issuance authority.

Authorized parking enforcement agents are authorized to issue citations and file complaints for the stopping, standing and parking violations of this title as provided in Chapter 12.85 of this Code. (Ord. 8242 §§ 1, 2, 1984; prior code § 20-29.2) (Ord. No. 17690, § 2, 12-6-2011)

12.08.190 Warrants—Recordkeeping.

The chief of police shall maintain or cause to be maintained a record of all warrants issued by the municipal court of this city or by any other court on such traffic violation charges and which are delivered to the police department for service, and of the final disposition of all such warrants. (Prior code § 20-27)

12.08.191 Refusal to register motor vehicles due to outstanding warrants fee.

The City of El Paso is imposing an additional twenty dollar fee to a person who has an outstanding warrant from the City of El Paso for failure to appear or failure to pay a fine on a complaint that involves the violation of a traffic law, who attempts to register or reregister their motor vehicle with the county tax assessor collector. This fee will only be used to reimburse the county tax assessor-collector or department for its expenses in refusing to register or reregister a vehicle whose owner has an outstanding warrant from the City of El Paso for failure to appear or failure to pay a fine on a complaint that involves the violation of a traffic law. The fee will apply to each individual warrant that is outstanding.
(Ord. No. 17879, § 1, 9-18-2012)

12.08.200 Forwarding records of conviction.

A. Within ten days after conviction or forfeiture of bond of a person upon a charge of violat-

ing any provision of this title or the state laws regulating traffic, the judge of the municipal court in which such conviction was had or bond was forfeited, shall prepare and immediately forward to the department of public safety of this state, an abstract of the record of such court covering the case in which such person was so convicted or bond was forfeited before him, which abstract must be certified by the person so required to prepare the same to be true and correct.

B. Such abstract must be made upon a form furnished by the department of public safety and shall include the name and address of the party charged; the number, if any, of his operator's, commercial operator's or chauffeur's license, the registration number of the vehicle involved; the nature of the offense; the date of hearing, the plea, the judgment or whether bond was forfeited and the amount of the fine or forfeiture, as the case may be. (Prior code § 20-33)

12.08.210 Records—Auditing.

A. Every record of traffic citations, complaints thereon, and warrants issued therefor required in this chapter shall be audited monthly by the city auditor or by such certified public accountants as may be appointed to perform this service by the city council. A report of such audit together with a summary thereof shall be submitted to the city council and all such reports shall be public records.

B. For the purpose of this chapter the city auditor or his authorized representatives or such other auditors as may be appointed by the city council shall have access at all times to all necessary records, files and papers of the municipal court, its traffic violations bureau and the police department. (Prior code § 20-28)

12.08.220 Impounding vehicles.

A. Members of the police department, the fire chief or his designee, or an employee designated by the city manager are authorized to remove or impound vehicles from any street, highway, alley, public or private ground, or public rights-of-way to the nearest garage, vehicle storage facility, or other place of safety, or to a garage or storage facility designated or maintained by the city under the circumstances herein enumerated:

1. When a vehicle is illegally parked in any zone or within any area where parking is prohibited or restricted by official signs or curb markings, or is parked in such a manner as to obstruct or partially obstruct any crosswalk, sidewalk or driveway;

2. When a vehicle is so parked as to obstruct the movement of any railroad train, railroad car or locomotive;

3. When a vehicle is parked on public or private property under or next to any fire escape or fire exit at a location such that the parked vehicle would obstruct or interfere with the operation or use of the fire escape or fire exits as a means of exit from the building;

4. When a vehicle is parked on public or private property next to any standpipe or sprinkler connection used by the fire department at a location such that the parked vehicle would obstruct or interfere with the operation of use of such connection;

5. When a vehicle is illegally parked in a zone designated by the city engineer under Section 12.44.180 of this Code and such zone is marked as a tow-away zone by a sign;

6. When a vehicle other than a commercial vehicle is parked in a loading zone designated for commercial vehicles only and such zone is marked by a sign as a tow-away zone;

7. When a vehicle is parked on city-owned property in violation of official signs or curb-markings established in accordance with Section 12.44.170 of this Code;

8. When a vehicle is left parked or standing on any portion of a limited-access or controlled-access highway for a continuous period of time in excess of ten hours;

9. When a vehicle is left parked or standing on city-owned property that is not held open or provided for vehicular traffic or public parking, and the property is so marked by a sign;

10. When a vehicle remains parked in violation of no parking signs posted regarding street construction in accordance with the provisions in Section 12.44.220 of this Code.

11. When a vehicle is parked legally on public property; and has been unattended for more than forty-eight hours; and there is reasonable grounds to believe the vehicle is abandoned.

B. Members of the police department and the fire chief or his designee are authorized to remove or impound vehicles from any street, highway, alley, public or private ground, or public rights-of-way to the nearest garage, vehicle storage facility, or other place of safety, or to a garage or storage facility designated or maintained by the city under the circumstances herein enumerated:

1. When a vehicle is left unattended upon any bridge, viaduct or causeway, or in any tube or tunnel where such vehicle constitutes an obstruction to traffic;

2. When the police department is authorized or directed to remove obstructions, including vehicles and personal property, from any right-of-way or any other portion of the roadway in accordance with the provisions in Section 545.3051, Transportation Code;

3. When a vehicle upon a street or highway is so disabled as to constitute an obstruction to traffic and the person or persons in charge of such vehicle are absent or are unable to provide for its custody or removal;

4. When a vehicle is stored in the streets, alleys or other rights-of-way in violation of Section 12.80.150 of this Code;

5. When a vehicle is left unattended upon a street where such vehicle constitutes a hazard or obstruction to the normal movement of traffic;

6. When a vehicle has been involved in an accident and by reason of damage or incapacity of the driver cannot be driven or is unsafe to drive;

7. When a vehicle constitutes a traffic hazard because of defective lights, brakes or steering apparatus;

8. When a vehicle is being used to transport hazardous materials in violation of Title 9 of this Code;

9. When the police department is authorized to take an abandoned motor vehicle, watercraft or outboard motor found on public or private property into custody pursuant to Section 683.011, Texas Transportation Code;

10. When a vehicle is offered or exposed for sale in violation of Section 13.20.040 of this Code and removed and stored in accordance with the provisions of that section;

11. When a vehicle is stopped by a police officer for an alleged traffic law violation; and the vehicle's owner or operator fails to show evidence of financial responsibility as required under Chapter 601 of the Texas Transportation Code, as amended.

C. Officers and other authorized employees may use city equipment or the services of an independent contractor of the city to remove or impound a vehicle and store it as authorized in this section, or to transfer or seize, impound and store a vehicle.

D. Whenever an officer or other authorized employee removes or impounds a vehicle utilizing city equipment, or when a peace officer seizes a vehicle utilizing city equipment, the city shall take the necessary steps to ascertain the registered owner and lienholders of record if any thereof, and shall give or cause to be given notice in writing, in accordance with Chapter 683 of the Texas Transportation Code, to such registered owner and lienholders of record if any of the fact of such removal, the police or fire department case number and the location of the place where the vehicle is located.

E. There is established a towing fee and a storage fee which shall be charged in the respective established fee amounts per day for vehicles twenty-five feet in length or less and for vehicles over twenty-five feet in length for each calendar day, or part thereof, for each vehicle that is removed or impounded hereunder or transferred or seized by

peace officer when it is towed by city equipment or stored in a city storage facility. All the charges assessed shall be a lien against the vehicle.

The registered owner, lienholder of record or person authorized or entitled to possession of a vehicle must comply with the requirements of the Texas Transportation Code and pay the city's towing and storage fees as authorized by this section and if applicable, any fees assessed against the vehicle under the authority in Chapter 12.85 of this Code or post a bond as may be provided for in this Code prior to redeeming the vehicle. Additionally, if the vehicle was towed by an independent contractor of the city or transferred to a city lot from a garage or vehicle storage facility, the registered owner, lienholder of record or person authorized or entitled to possession of a vehicle must also pay those outstanding towing, storage and other related fees or post a bond as may be provided for in this Code prior to redeeming the vehicle.

Fees must be paid in accordance with the procedures established by the police department and the comptroller's office.

Information as to these procedures shall be made available to persons seeking to reclaim a vehicle. Vehicles will be released from the storage facility during the hours the facility is open to the public on presentment of proof that payment has been made. A person reclaiming a vehicle must remove it from the city's storage facility within twenty-four hours after paying the towing and storage charges, or he will be assessed additional storage charges. Vehicles not reclaimed within the time allowed under the Texas Transportation Code will be disposed of in accordance with that code.

F. Whenever a vehicle is removed, impounded, or seized under the authority of this section utilizing the services of an independent contractor of the city, the independent contractor shall comply with all notice and redemption of vehicle provisions required by the Texas Transportation Code.

G. Whenever a vehicle is removed, impounded, or seized under the authority of this section utilizing the services of an independent contractor, the independent contractor shall be entitled to charge and receive from the registered owner, lienholders of record if any or other person authorized or entitled to reclaim the vehicle all charges and fees authorized in its contract with the city. All the charges assessed shall be a lien against the vehicle. Vehicles not reclaimed within the time allowed under the Texas Transportation Code will be disposed of in accordance with that code.

H. The term "vehicle" as used in this section shall be deemed to include bicycles. Any bicycle that remains unclaimed for a period of thirty days shall be disposed of in accordance with Article 18.17, Texas Code of Criminal Procedure.

I. Members of the police department are authorized to remove or impound from any public or private property to a city storage facility, other vehicle storage facility, or other location of an auction, by means of city-owned and operated wrecker equipment, or by utilizing the services of an independent contractor of the city, all motor vehicles that at the time of removal are abandoned motor vehicles under the Texas Transportation Code. The registered owner or person entitled to possession of a vehicle must comply with the Texas Transportation Code and pay all towing, storage and other fees as authorized by this section prior to redeeming the vehicle. All vehicles must be redeemed in accordance with the provisions of this section.

J. A registered owner or other person whose vehicle has been removed or impounded under the authority of this section may, within ten days of the day the vehicle was removed or impounded, request a post-deprivation hearing. At the time of the request, the registered owner or other person shall post a bond, sufficient to cover the cost of all outstanding tickets and towing and storage fees accrued, and shall provide the case number used by the police or fire department in making the report pertaining to the removal or impoundment of the vehicle. Such bond shall be posted at the municipal court bond office. Such person's vehicle

will be released from the storage facility on presentment of proof that the requisite bond has been posted.

The hearing shall be held before a judge of the El Paso Municipal Court. A judge shall, as soon as practicable, hear the matter, after giving reasonable notice to the police chief or fire marshal, as applicable. The party requesting the hearing and the police chief or fire marshal or their designated representatives shall have the opportunity to present evidence and make argument on their behalf. The formal rules of evidence do not apply to a hearing under this section.

The judge hearing the case shall make his or her ruling on the basis of substantial evidence presented at the hearing. The judge shall uphold or overrule the decision to remove or impound the vehicle. In the event that the decision is upheld, the bond shall be forfeited to the city. In the event that the decision is overruled, the amount of the bond shall be returned to the person who posted it. The decision of the judge is final. (Ord. 15527 § 1, 2003; Ord. 14930 § 1, 2001; Ord. 14844 § 1, 2001: Ord. 13152 § 98, 1997; Ord. 12329 § 1, 1994: Ord. 10971 § 6, 1992; Ord. 10964 § 1, 1992; Ord. 9020, 1987; prior code § 20-34)
(Ord. No. 17141, § 1, 7-14-2009, eff. 9-5-2009; Ord. No. 17690, § 3, 12-6-2011; Ord. No. 19260, § 1, 11-23-2021)

12.08.230 Disabled-parking enforcement volunteers—Parking citation issuance authority.

A. Any person desiring to be appointed as a disabled-parking enforcement volunteer shall submit an application on a form established by the chief of police, or his designee. The applicant shall be at least eighteen years of age and meet the criteria for qualification as established in Section 681.0101, Texas Transportation Code. The applicant shall state his correct name, current address and telephone number on the application. The chief of police or his designee is authorized to require any additional information from the applicant as he deems necessary to complete the application and determine the qualifications of the applicant. The applicant shall sign all necessary documents to authorize the city and its police or human resources departments to conduct a criminal history record check of the applicant.

B. Applications shall be submitted to the chief of police or his designee. The chief of police or his designees shall determine the qualifications of the applicant and make recommendations as to which applicants are qualified to be appointed as disabled-parking enforcement volunteers.

C. Before any appointment may become effective, each disabled-parking enforcement volunteer shall:

1. Satisfactorily complete a course of training on disabled parking law and enforcement to be developed and conducted by the police department;

2. Sign a volunteer services agreement with the city in which the applicant:

a. Acknowledges that such disabled-parking enforcement volunteer and his heirs and assigns have no rights to any claim against the city, its officers, employees and agents, for any injury, death or property damage resulting from or due to any and all disabled parking enforcement activities;

b. Specifically holds harmless the city, its officers, employees and agents, from liability for any of his acts or omissions taken in connection with his appointment as a disabled-parking enforcement volunteer;

c. Agrees to testify as may be required at all court and administrative proceedings relating to his issuance of a citation or filing of charges against a person for a violation of the disabled parking laws and that he agrees to voluntarily come to do so at the request of the parking violations bureau without the necessity for the issuance of a subpoena; and

d. Agrees to comply with all applicable laws and ordinances as they relate to the performance of the volunteer services.

3. Take and subscribe to an oath of office as may be prescribed by the city; and

4. Make the election under Section 552.024, Texas Government Code, concerning the release or nonrelease of the information covered in that section, and complete any other forms, which the city determines are necessary in connection with the volunteer's services.

D. Appointment of a disabled-parking enforcement volunteer shall become effective upon the execution of the volunteer services agreement by the city manager or designee and the volunteer and completion of the volunteer's training.

E. Persons appointed as disabled-parking enforcement volunteers are authorized, as provided by Section 681.010, Texas Transportation Code, to issue citations and file complaints against any person relating to any vehicle found to be parked in a parking space or parking area designated for the exclusive use of vehicles transporting persons with disabilities in the city in violation of Sections 12.44.180 B.11. and 12.44.200 of this Code or Section 681.011, Texas Transportation Code, subject to the following limitations as provided herein and in Section 681.0101, Texas Transportation Code:

1. No disabled-parking enforcement volunteer shall be deemed a peace officer, nor receive any compensation from the city while in the capacity of a disabled-parking enforcement volunteer;

2. No disabled-parking enforcement volunteer shall have the power or duty to enforce other traffic, civil or criminal laws;

3. No disabled-parking enforcement volunteer shall possess or carry firearms or other weapons while in the enforcement of the disabled parking laws; and

4. No disabled-parking enforcement volunteer, and his heirs and assigns, shall be entitled to any indemnification or compensation from the State of Texas, County of El Paso, or the City of El Paso, and their officers, employees and agents, for any injury, death or property damage sustained as a result of or due to enforcement activities.

F. All disabled-parking enforcement volunteers shall provide notice of any change of name, address or telephone number to the chief of police or his designee and to the human resources department no later than ten days after the effectiveness of such change.

G. The chief of police or his designee may, at any time and without cause, remove the authorization of any person to act as a disabled-parking enforcement volunteer, by giving the person a written notice that his authorization to act as a disabled-parking enforcement volunteer has been removed. (Ord. 16628 § 1, 2007; Ord. 12839, § 1, 1996) (Ord. No. 17690, § 4, 12-6-2011)

Chapter 12.12

AUTHORIZED EMERGENCY VEHICLES

Sections:

12.12.010 Adherence to regulations.
12.12.020 Operation of other vehicles and streetcars on approach.

12.12.010 Adherence to regulations.

A. The driver of an authorized emergency vehicle, when responding to an emergency call or when in the pursuit of an actual or suspected violator of the law, or when responding to, but not upon returning from, a fire alarm, may exercise the privileges set forth in this section, but subject to the conditions herein stated.

B. The driver of an authorized emergency vehicle may:

1. Park or stand irrespective of the provisions of this title;

2. Proceed past a red or stop signal or stop sign only after slowing down as may be necessary for safe operation;

3. Exceed the prima facie speed limits when such vehicle is operated in response to an emergency call or in the immediate pursuit of an actual or suspected violator of the law, except that ambulances on emergency calls shall not be operated at a rate of speed greater than ten miles per hour over or above the posted prima facie speed limit on any street within the city limits;

4. Disregard regulations governing directions of movement or turning in specified directions.

C. The exemptions herein granted to an authorized emergency vehicle shall apply only when the driver of any such vehicle while in motion sounds audible signal by bell, siren or exhaust whistle, as may be reasonably necessary, and/or when the vehicle is equipped with at least one lighted lamp displaying a red light visible under normal atmospheric conditions from a distance of five hundred feet to the front of such vehicle, except that an authorized emergency vehicle operated as a police vehicle need not be equipped with or display a red light visible from in front of the vehicle.

D. The foregoing provisions shall not relieve the driver of an authorized emergency vehicle from the duty to drive with due regard for the safety of all other persons, nor shall such provisions protect the driver from the consequence of his reckless disregard for the safety of others.

E. The foregoing subsections A, B and C of this section apply to vehicles of the police and fire departments, vehicles of the El Paso International Airport, and to authorized ambulances. Vehicles of other city departments may be equipped with a flashing amber light, and when so equipped such vehicles are designated as authorized emergency vehicles, but only for the limited purposes of this subsection. Such city vehicles equipped with a flashing amber light, and while such light is flashing, may stand or park irrespective of the provisions of this title; and may, while such light is flashing, disregard regulations governing directions of movement or turning in specified directions in order to stand or park in the performance of their functions. The driver of such vehicles equipped with an amber light shall, however, obey all other traffic laws and ordinances.

F. No person shall drive or move any vehicle or equipment or device moved by human power upon any street or highway within the city limits with any lamp or device thereon displaying a red light visible from directly in front of the center thereof. This subsection shall not apply to police vehicles or to any vehicle upon which a red light visible from the front is expressly authorized or required by law. This subsection applies to the color of any lamp or illumination device whether lighted or unlighted, and to any reflector exhibiting or reflecting perceptible light. (Prior code § 20-16)

12.12.020 Operation of other vehicles and streetcars on approach.

A. Upon the immediate approach of an

authorized emergency vehicle when responding to an emergency as set forth in this title:

1. The driver of every other vehicle shall yield the right-of-way and shall immediately drive to a position parallel to, and as close as possible to, the right-hand edge or curb of the roadway or, in the case of a one-way traffic street, to either edge or curb of the roadway, clear of any intersection and shall stop and remain in such position until the authorized emergency vehicle has passed, except when otherwise directed by a police officer.

2. Upon the approach of an authorized emergency vehicle, as above stated, the motorman of every streetcar shall immediately stop such car clear of any intersection and keep it in such position until the authorized emergency vehicle has passed except when otherwise directed by a police officer.

B. This section shall not operate to relieve the driver of an authorized emergency vehicle from the duty to drive with due regard for the safety of all persons using the highway. (Prior code § 20-17)

Chapter 12.16

ACCIDENT REPORTS

Sections:

12.16.010 Required—Driver of vehicles involved.
12.16.020 Required—Defense to prosecution.
12.16.030 Confidentiality.

12.16.010 Required—Driver of vehicles involved.

The drivers of vehicles involved in an accident resulting in injury or death to any person, or damage to property to an apparent extent of one thousand dollars or more shall immediately report such accident to the police department and shall remain on the scene of such accident until the arrival of police. (Ord. 14931 § 1, 2001: Ord. 10197 § 1, 1990: prior code § 20-19)

12.16.020 Required—Defense to prosecution.

It shall be a defense to prosecution under this chapter that the person:

A. Was physically incapable of making a required accident report;

B. Complied with all applicable requirements of Chapter 550, Texas Transportation Code, but left the scene of the accident prior to the arrival of a police officer in order to obtain medical care for himself or herself or an occupant of his or her vehicle; or

C. Made the required accident report and complied with all applicable requirements of Chapter 550, Texas Transportation Code, but left the scene of the accident prior to the arrival of a police officer after waiting thirty minutes at the scene after reporting the accident and no officer arrived at the scene within that time. (Ord. 14931 § 2, 2001: Prior code § 20-20)

12.16.030 Confidentiality.

All required accident reports and supplementary reports shall be without prejudice to the individual so reporting and shall be for the confidential use of the police department or other governmental agencies having use for the records for accident prevention purposes, except that the police department may disclose the identity of a person involved in an accident when such identity is not otherwise known or when such person denies his presence at such accident. (Prior code § 20-21)

Chapter 12.20

TRAFFIC-CONTROL DEVICES

Sections:

12.20.010 Installation authority.
12.20.020 Obedience to—Burden of providing proof of existence.
12.20.030 Conformance with manual and specifications.
12.20.040 Specific locations.
12.20.050 Effect of illegible or missing signs—Sections effective where sign not required.
12.20.060 Signal legend—Go, caution and stop.
12.20.070 Signal legend—Walk, wait and don't walk.
12.20.080 Signal legend—Flashing signals.
12.20.090 Display of unauthorized signs.
12.20.100 Interference with devices—Prohibited without authority.
12.20.110 Interference with devices—Permit required.
12.20.120 Crosswalk and safety zone designation authority.
12.20.130 Traffic lanes—Authority to mark—Compliance with required.
12.20.140 Crossing yellow lines—South Stanton Street.
12.20.150 Crossing yellow lines—Oregon Street.
12.20.160 Crossing yellow lines—Stanton Street.
12.20.170 School flasher and pedestrian safety flasher signals.
12.20.180 Definitions.
12.20.190 School flasher signal installations.
12.20.200 Pedestrian safety flasher signal installation.
12.20.210 Traffic engineering study.
12.20.220 Flasher signal standards.
12.20.230 Ownership and maintenance.

12.20.010 Installation authority.

The traffic engineer, subject to the approval of the city council, shall place and maintain traffic-control signs, signals and devices when and as required under the traffic ordinances of this city to make effective the provisions of such ordinances and may place and maintain such additional traffic-control devices as may be necessary to regulate traffic under the traffic ordinances of this city or under state law, or to guide or warn traffic. (Prior code § 20-35)

12.20.020 Obedience to—Burden of providing proof of existence.

A. The driver of any vehicle and the motorman of any streetcar shall obey the instructions of any applicable traffic-control device, signal, sign, or curb or street marking placed in accordance with any law or ordinance, unless otherwise directed by a police officer, or unless in circumstances (such as authorized emergency vehicles in certain cases) when compliance is excused by law or ordinance.

B. In any prosecution for any violation of this title, it shall not be necessary for the state or city to prove the installation, or authority therefor, of any traffic-control device, signal, sign, or curb or street marking; but any person charged with such violation shall have the right to prove as a defense that the traffic-control device, signal, sign or marking was not so installed or authorized. (Prior code § 20-36)

12.20.030 Conformance with manual and specifications.

All traffic-control signs, signals and devices shall conform to the manual and specifications approved by the State Highway Commission or resolution adopted by the legislative body of this city. All signs and signals required hereunder for a particular purpose shall so far as practicable be uniform as to type and location throughout the city. All traffic-control devices so erected and not inconsistent with

the provisions of state law or this chapter shall be official traffic-control devices. (Prior code § 20-37)

12.20.040 Specific locations.

The traffic engineer shall place and maintain traffic-control signs, signals and devices at the various intersections and locations as set out in Schedule XII, Section 12.88.140 and at all other places where traffic-control signs, signals and devices are now in place within the city. (Prior code § 20-39)

12.20.050 Effect of illegible or missing signs—Sections effective where sign not required.

No provision of this title for which signs are required shall be enforced against an alleged violator if at the time and place of the alleged violation an official sign is not in proper position and sufficiently legible to be seen by an ordinarily observant person. Whenever a particular section does not state that signs are required such section shall be effective even though no signs are erected or in place. (Prior code § 20-38)

12.20.060 Signal legend—Go, caution and stop.

Whenever traffic is controlled by traffic-control signals exhibiting the words "go," "caution," or "stop," or exhibiting different colored lights successively one at a time, or with arrows, the following colors only shall be used and such terms and lights shall indicate and apply to drivers of vehicles and pedestrians as follows:

A. Green alone or "go":

1. Vehicular traffic facing the signal may proceed straight through or turn right or left unless a sign at such place prohibits either such turn. But vehicular traffic, including vehicles turning right or left, shall yield the right-of-way to other vehicles and to pedestrians lawfully within the intersection or an adjacent crosswalk at the time such signal is exhibited.

2. Pedestrians facing the signal may proceed across the roadway within any marked or unmarked crosswalk unless prohibited so to do by a pedestrian "Wait" signal.

B. Yellow alone or "caution" when shown following the green or "go" signal:

1. Vehicular traffic facing the signal is thereby warned that the red or "stop" signal will be exhibited immediately thereafter and such vehicular traffic shall not enter or be crossing the intersection when the red or "Stop" signal is exhibited.

2. Pedestrians facing such signal are thereby advised that there is insufficient time to cross the roadway, and any pedestrian then starting to cross shall yield the right-of-way to all vehicles.

C. Red alone or "stop":

1. Vehicular traffic facing the signal shall stop before entering the crosswalk on the near side of the intersection or, if none, then before entering the intersection, and shall remain standing until green or "go" is shown alone, except that the vehicle may make on the red signal any turn permitted by state law.

a. Provided, such turns on a steady red signal are prohibited on the named approaches to the following intersections:

Intersection	Approach
Alabama Street—McKelligon	Westbound on McKelligon Drive
Alabama Street—Nashville Avenue	Westbound on Nashville Eastbound on Nashville
Alameda Avenue—Candelaria Street—Old Pueblo Drive	Southbound on Candelaria Southbound on Old Pueblo
Alameda Avenue—Concepcion Street	Northbound on Concepcion
Chelsea Street—El Paso Drive-Paisano Drive	Southbound on Paisano
Dyer Street—Ellerthorpe Avenue	Northbound and Southbound on Dyer Street
Gateway North—Altura Avenue	Northbound on Gateway North
Gateway North—Trowbridge Drive	Northbound on Gateway North
Gateway North—Yandell Drive	Northbound on Gateway North
Gateway North—Montana Avenue	Northbound on Gateway North

Intersection	Approach
Gateway South—Trowbridge Drive	Southbound on Gateway South
Gateway South—Yandell Drive	Southbound on Gateway South
Mesa Street—San Antonio Avenue	Southbound on Mesa Northbound on Mesa
Mesa Street—Schuster Avenue	Eastbound on Schuster
Montana Avenue—Airport Road	Westbound on Montana Southbound on Airport
Raynolds Street—Gateway West	Southbound on Raynolds
Santa Fe Street—Wyoming Avenue	Northbound on Santa Fe Street
Trowbridge Drive—Texaco Road	Northbound on Texaco

b. At intersections where dual right turns are permitted on the green signal, right turns on the red signal are permitted in the right lane only, and are prohibited in the adjacent lane.

c. At the following intersection left turns on the red signal are prohibited:

Intersection	Approach
Kansas Street-Yandell Drive—IH-10 off-ramp	Westbound on Yandell and on-ramp
Campbell Street—Yandell Drive	Northbound on Campbell Street

d. At all intersections where dual left turns are permitted from a one-way street on the green signal, left turns on the red signal are permitted in the left lane only, and are prohibited in the adjacent lane.

e. At all intersections where dual left turns are permitted from the center of an arterial street only on a green arrow signal, all left turns and U-turns are prohibited when no green arrow signal is displayed.

D. Red with green arrow:

1. Vehicular traffic facing such signal may cautiously enter the intersection only to make the movement indicated by such arrow, but shall yield the right-of-way to pedestrians lawfully within a crosswalk and to other traffic lawfully using the intersection.

2. No pedestrian facing such signal shall enter the roadway until the green or "go" is shown alone unless authorized so to do by a pedestrian "walk" signal.

E. In the event an official traffic-control signal is erected and maintained at a place other than an intersection, the provisions of this section shall be applicable except as to those provisions which by their nature can have no application. Any stop required shall be made at a sign or marking on the pavement indicating where the stop shall be made, but in the absence of any such sign or marking the stop shall be made at the signal.

F. The motorman of any street car shall obey the above signals as applicable to vehicles. (Ord. 12245 Exh. A, 1995; prior code § 20-40)
(Ord. No. 18409, § 1, 8-25-2015; Ord. No. 18622, § 1, 12-6-2016; Ord. No. 18919, § 1, 3-19-2019)

12.20.070 Signal legend—Walk, wait and don't walk.

Whenever special pedestrian-control signals exhibiting the words "walk" or "wait" "don't walk" are in place, such signals shall indicate as follows:

A. Walk. Pedestrians facing such signal may proceed across the roadway in the direction of the signal or in any marked crosswalk and shall be given the right-of-way by the drivers of all vehicles.

B. Wait, Don't Walk, or an Illuminated Symbol of an Up-raised Palm (symbolizing don't walk). No pedestrian shall start to cross the roadway in the direction of such signal, but any pedestrian who has partially completed his crossing on the walk signal shall proceed to the nearest sidewalk or safety zone while the wait signal is showing. (Prior code § 20-41)

12.20.080 Signal legend—Flashing signals.

A. Whenever an illuminated flashing red or yellow signal is used in a traffic sign or signal it shall require obedience by vehicular traffic as follows:

1. Flashing Red (stop signal). When a red lens is illuminated with rapid intermittent flashes, drivers of vehicles shall stop before entering the nearest crosswalk at an intersection or at a limit line when marked, or, if none, then before entering

the intersection, and the right to proceed shall be subject to the rules applicable after making a stop at a stop sign.

2. Flashing Yellow (caution signal). When a yellow lens is illuminated with rapid intermittent flashes, drivers of vehicles may proceed through the intersection or past such signal only with caution.

B. This section shall not apply at railroad grade crossings. Conduct of drivers of vehicles approaching railroad grade crossings shall be governed by the rules as set forth in Section 12.84.010. (Prior code § 20-42)

12.20.090 Display of unauthorized signs.

A. No person shall place, maintain or display upon or in view of any highway, street or roadway

any unauthorized sign, signal, marking or device which purports to be or is an imitation of or resembles an official traffic control device or railroad sign or signal or which attempts to direct the movement of traffic, or which hides from view or interferes with the effectiveness of any official traffic-control device or any railroad sign or signal.

B. No person shall place or maintain, nor shall any public authority permit, upon any highway any traffic sign or signal bearing thereon any commercial advertising.

C. This section shall not be deemed to prohibit the erection upon private property adjacent to highways of signs giving useful directional information and of a type that cannot be mistaken for official signs.

D. Every such prohibited sign, signal or marking is declared to be a public nuisance and the authority having jurisdiction over the highway is hereby empowered to remove the same or cause it to be removed without notice. (Prior code § 20-43)

12.20.100 Interference with devices—Prohibited without authority.

No person shall without lawful authority attempt to or in fact alter, deface, injure, knock down or remove any official traffic-control device or any railroad sign or signal or any inscription, shield or insignia thereon, or any other part thereof. (Prior code § 20-44)

12.20.110 Interference with devices—Permit required.

A. No person shall remove, deface, or obscure the wording of any traffic sign or signal, or cause the same to be done, without first obtaining a permit from the traffic engineer.

B. In the case of signs not electrically operated or illuminated, such person shall notify the traffic engineer of the time when the sign is to be removed, defaced, or obscured; and upon completion of the work by reason of which the sign is removed, defaced or obscured he shall promptly restore the sign and notify the traffic engineer of its restoration.

C. In the case of signs or signals which are electrically operated or illuminated, removal of the sign or signal, or any alteration thereof which may affect the electrical connections, parts, or operation, and the restoration thereof, shall be done by the city and the actual cost of such work shall be paid by the person at whose instance such work is done. The person doing or causing to be done the removing, defacing or obscuring of such sign or signal shall notify the traffic engineer at least twenty-four hours in advance of the time when the same is to be done. If restoration is to be done by the city, such person shall promptly notify the traffic engineer of completion of the work by reason of which the sign is removed, defaced or obscured. If restoration is to be done by such person he shall promptly do such restoration and notify the traffic engineer.

D. The traffic engineer may require a deposit or bond to protect the city against loss in doing any restoration called for under this section if in his opinion the probable cost of the work and the financial condition of the applicant justify such deposit or bond. (Prior code § 20-45)

12.20.120 Crosswalk and safety zone designation authority.

The traffic engineer is hereby authorized:

A. To designate and maintain, by appropriate devices, marks or lines upon the surface of the roadway, crosswalks at intersections where in his opinion there is particular danger to pedestrians crossing the roadway, and at such other places as he may deem necessary;

B. To establish safety zones of such kind and character and at such places as he may deem necessary for the protection of pedestrians. (Prior code § 20-46)

12.20.130 Traffic lanes—Authority to mark—Compliance with required.

A. The traffic engineer is authorized to mark traffic lanes upon the roadway of any street or highway where a regular alignment of traffic is necessary.

B. Where such traffic lanes have been marked, it is unlawful for the operator of any vehicle to fail or refuse to keep such vehicle within the boundaries of any such lane except when lawfully passing another vehicle or preparatory to making a lawful turning movement.

C. Whenever any street or highway has been divided into four or more even numbers of clearly marked lanes for moving traffic, it is unlawful for the operator of any vehicle to drive to the left of the centerline of any such street or highway, except for the purpose of making a lawful turning movement; provided, that this section shall not apply to emergency vehicles when responding to emergency calls. (Prior code § 20-47)

12.20.140 Crossing yellow lines—South Stanton Street.

A. A double yellow line parallel to and thirty-nine feet from the west curbline of South Stanton Street shall be painted on the roadway of the street between the railroad tracks immediately north of the International Bridge and a point fifty feet south of the north rail of the second railroad track north of the bridge; and a double yellow line parallel to end thirty-one feet from the west curbline of said street shall be painted on the roadway between the second railroad track north of the bridge and the south line of Ninth Avenue. The north end of the first double line and the south end of the second double line shall be connected by a straight double yellow line painted on the roadway.

N. Every driver of a southbound vehicle on the above described part of Stanton Street shall keep to the west of the above described double lines, and every driver of a northbound vehicle on said part of Stanton Street shall keep to the east of the double lines. (Prior code § 20-46.1)

12.20.150 Crossing yellow lines—Oregon Street.

A. A double yellow line parallel to and eighteen feet from the east curbline on Oregon Street shall be painted on the roadway of the street between San Antonio Avenue and Paisano Drive.

B. Every driver of a southbound vehicle on the above described part of Oregon Street shall keep to the west of the double line, and every driver of a northbound vehicle on said part of Oregon Street shall keep to the east of the double line. (Prior code § 20-46.2)

12.20.160 Crossing yellow lines—Stanton Street.

A. A double yellow line parallel to and eighteen feet from the west curbline of Stanton Street shall be painted on the roadway of the street between the north right-of-way line of Arizona Avenue and the south right-of-way line of California Avenue, and the north end of this double yellow line shall be connected by a double yellow line to the south end of a double yellow center line on Stanton Street at River Avenue.

B. Every driver of a southbound vehicle on

the above described part of Stanton Street shall keep to the east of the double line, and every driver of a northbound vehicle on the above described part of Stanton Street shall keep to the east of the double line. (Prior code § 20-46.3)

12.20.170 School flasher and pedestrian safety flasher signals.

This section sets forth basic principles and prescribes the standards to be followed in the application, installation and maintenance of school flasher signals and pedestrian safety flasher signals. The designation of school crossing zones shall be governed by Chapter 12.28 of the El Paso City Code. (Ord. 13974 § 1 (part), 1999)

12.20.180 Definitions.

As used in this chapter, the following terms shall have the following meaning:

A. "Applicant" means the individual(s), entity, organization, or group that has submitted a request for the installation of a school flasher signal or a pedestrian safety flasher signal.

B. "School crossing zone" means a reduced speed zone designated upon any street by the traffic engineer to facilitate safe crossing of the street by children going to or leaving from a public or private primary or secondary school or any combination thereof as set forth in Chapter 12.28 of the El Paso City Code.

C. "Pedestrian safety zone" means a reduced speed zone designated upon any street by the traffic engineer to facilitate safe crossing of the street by pedestrians.

D. "School flasher signal" means an electronically or mechanically operated traffic control device placed, erected, or installed by the City of El Paso for the purpose of regulating and warning vehicular traffic at designated school zones to reduce speeds to facilitate safe crossing of streets by school children.

E. "Pedestrian safety flasher signal" shall mean an electronically or mechanically operated traffic control device placed, erected or installed by the City of El Paso for the purpose of regulating and warning vehicular traffic at designated pedestrian safety zones to reduce speeds to facilitate safe crossing of streets by pedestrians. (Ord. 13974 § 1 (part), 1999)
(Ord. No. 17394, § 2, 8-24-2010, eff. 9-1-2010)

12.20.190 School flasher signal installations.

All requests for the installation of a school flasher signal shall be handled in accordance with this section.

A. The applicant requesting the installation of a school flasher signal shall submit a written request to the traffic engineer. The request shall come from the school board of the school requesting the school flasher signal and shall contain the location of the requested signal and a statement that the applicant will comply with all provisions of this section, including but not limited to, the payment responsibilities set forth in section.

B. The applicant shall be responsible for payment of one hundred percent of the total equipment and installation cost of the school flasher signal.

C. Upon receipt of the written request, the traffic engineer shall direct the conduct of a traffic engineering study to determine the justification for a school flasher signal in the area. The applicant shall be notified of the results of the traffic engineering study.

D. If the traffic engineering study indicates that a school flasher signal is justified in the area, the engineering traffic division shall designate a school crossing zone pursuant to Section 12.28.020 of the El Paso City Code in the area at no cost to the applicant. If the applicant requests that a school flasher signal be installed in addition to the school crossing zone or, if there is a school crossing zone in the area already, a school flasher signal may be installed; provided, that the applicant agrees to be responsible for the payment of one hundred percent of the costs associated with the installation of such signal and executes an agreement, in a form acceptable to the city attorney's office, setting forth the applicant's responsibilities.

E. Upon execution of the agreement and the city's receipt of the payment in full, the engineering traffic division shall proceed with the design and installation of the school flasher signal.

F. Any modifications to the school flasher signal requested by the applicant may be made at the city's sole discretion, at the applicant's sole expense. (Ord. 13974 § 1 (part), 1999)
(Ord. No. 17394, § 3, 8-24-2010, eff. 9-1-2010; Ord. No. 17815, §§ 1, 2, 6-19-2012)

12.20.200 Pedestrian safety flasher signal installation.

All requests for installation of a pedestrian safety flasher signal shall be handled in accordance with the provisions of this section.

A. The applicant requesting the installation of a pedestrian safety flasher signal shall submit a written request to the traffic engineer. The request shall contain the location of the requested signal and a statement that the applicant will comply with all provisions of this section, including but not limited to, the payment responsibilities set forth in section.

B. The applicant shall be responsible for payment of one hundred percent of the total equipment and installation costs of the pedestrian safety flasher signal.

C. Upon receipt of the written request, the traffic engineer shall direct the conduct of a traffic engineering study to determine the justification for a pedestrian safety flasher signal. The applicant shall be notified of the results of the traffic engineering study.

D. If the traffic engineering study indicates that a pedestrian safety flasher signal is justified, the traffic engineer shall designate a pedestrian safety zone in the area pursuant to Section 12.20.120 of the El Paso City Code. If the applicant requests that a pedestrian safety flasher signal be installed in addition to a pedestrian safety zone or if there is a pedestrian safety zone in the area already, a pedestrian safety flasher signal may be installed; provided, that the applicant agrees to be responsible for the payment of one hundred percent of the costs associated with the installation of such a signal and executes an agreement, in a form acceptable to the city attorney's office, setting forth the applicant responsibilities.

E. Upon execution of the agreement by the applicant and the city and the city's receipt of the payment, the traffic engineer shall proceed with the design and installation of the pedestrian safety flasher signal.

F. Any modifications to the pedestrian flasher signal requested by the applicant may be made at the city's sole discretion, at the applicant's sole expense (Ord. 13974 § 1 (part), 1999)
(Ord. No. 17394, § 4, 8-24-2010, eff. 9-1-2010)

12.20.210 Traffic engineering study.

The traffic engineer shall be responsible for conducting the comprehensive traffic engineering study to analyze and determine the need for a school or pedestrian safety flasher signal. The engineering traffic study shall consist of the following:

1. Traffic volume survey;
2. Gap study;
3. Speed study;
4. A field site survey. (Ord. 13974 § 1 (part), 1999)

(Ord. No. 17394, § 5, 8-24-2010, eff. 9-1-2010)

12.20.220 Flasher signal standards.

The basic principles and prescribed standards applied in the traffic engineering study shall conform to the applicable specifications of the Texas Manual on Uniform Traffic Control Devices (TMUTCD). A copy of the TMUTCD shall be on file with the engineering traffic division. (Ord. 13974 § 1 (part), 1999)

12.20.230 Ownership and maintenance.

It shall be unlawful for a person to modify, remove or in any way damage a school flasher signal or pedestrian safety flasher signal without the approval of the deputy director of engineering. The penalties applicable to this ordinance are as provided in Section 1.08.010 of the general code

provisions of the City of El Paso, which provide for a fine not exceeding five hundred dollars per violation as may be affected by state law or as may be changed from time to time by the city council. (Ord. 13974 § 1 (part), 1999)

Chapter 12.21

PHOTOGRAPHIC TRAFFIC SIGNAL ENFORCEMENT SYSTEM* **

Sections:

12.21.010 Definitions.

12.21.020 Imposition and amount of civil penalty.

12.21.030 Enforcement and procedures.

12.21.040 Administrative adjudication hearing.

12.21.050 Affirmative defenses.

12.21.060 Appeal.

12.21.070 Effect of liability; exclusion of civil remedy; enforcement.

* Prior ordinance history: Ords. 16203 and 16574.

** Editor's note: The title of Chapter 12.21 was renamed by Ord. 16873, § 1.

12.21.010 Definitions.

As used in this chapter, the following words and terms shall have the meanings ascribed in this section, unless the context of their usage clearly indicates another meaning:

"Intersection" means the common area at the junction of two highways, other than the junction of an alley and a highway. The dimensions of an intersection include only the common area: (1) within the connection of the lateral curb lines or, in the absence of curb lines, the lateral boundary lines of the roadways of intersecting highways that join at approximate right angles; or (2) at the place where vehicles could collide if traveling on roadways of intersecting highways that join at any angle other than an approximate right angle. Each junction of each roadway of a highway that includes two roadways at least thirty feet apart with the roadway of an intersecting highway, including each roadway of an intersecting highway that includes two roadways at least thirty feet apart, is a separate intersection.

"Local authority" means a county, municipality, or other local entity authorized to enact traffic laws under the laws of this state.

"Owner of a motor vehicle" means the owner of a motor vehicle as shown on the motor vehicle registration records of the Texas Department of Transportation or the analogous department or agency of another state or country.

"Photographic traffic signal enforcement system" means a system that: (1) consists of a camera system and vehicle sensor installed to exclusively work in conjunction with an electrically operated traffic control signal; and (2) is capable of producing at least two recorded images that depict the license plate attached to the front or rear of a motor vehicle that is not operated in compliance with the instructions of the traffic control signal.

"Recorded image" means a photographic or digital image that depicts the front or the rear of a motor vehicle.

"System location" means an intersection toward which a photographic traffic monitoring system is directed and in operation.

"Traffic control signal" means manual, electric, or mechanical device that alternately directs traffic to stop and to proceed.

"Unpaid civil penalty" means a civil penalty assessed under this chapter that is not paid by the deadline established for making the payment as provided in this chapter; or if administratively adjudicated pursuant to section 12.21.040, not paid upon the finding of liability by the hearing officer; or if appealed pursuant to section 12.21.060, not paid upon the entry of an order or judgment finding liability by the municipal court. (Ord. 16873 § 2 (part), 2008)
(Ord. No. 17878, § 1, 9-19-2012)

12.21.020 Imposition and amount of civil penalty.

A. The owner of a motor vehicle is liable for a civil penalty of seventy-five dollars, if while facing only a steady red signal displayed by an electrically operated traffic-control signal located in the local authority, the vehicle is operated in violation of the instructions of that traffic-control signal, as specified by Section 544.007(d) of the Texas Transportation Code.

B. The imposition of a civil penalty under this chapter is initiated by the mailing of a notice of violation to the owner of the motor vehicle that the City of El Paso seeks to impose a civil penalty for failing to comply with the instructions of a traffic control signal.

C. An owner of a motor vehicle who fails to timely pay the civil penalty assessed for violation of the instructions of a traffic control signal shall be subject to a late payment penalty of twenty-five dollars under this chapter. (Ord. 16873 § 2 (part), 2008)

12.21.030 Enforcement and procedures.

A. The police department and the municipal clerk's department, office of municipal court clerk, shall be responsible for the enforcement and administration of this chapter. The police chief and the chief clerk of the municipal courts shall establish and implement appropriate procedures to affect the policy of this chapter.

B. To impose a civil penalty under this chapter, the municipal clerk's department shall mail or cause to be mailed a notice of violation to the owner of the motor vehicle liable for the civil penalty not later than thirty days after the date the violation is alleged to have occurred to the owner at:

1. The owner's address as shown on the registration records of the Texas Department of Transportation; or

2. If the vehicle is registered in another state or country, the owner's address as shown on the motor vehicle registration records of the department or agency of the other state or country analogous to the Texas Department of Transportation.

C. The notice of violation shall contain the following:

1. A description of the violation alleged;

2. Location of the intersection where violation occurred;

3. The date and time of the violation;

4. The name and address of the owner of the vehicle involved in the violation;

5. The registration number displayed on the license plate of the vehicle involved in the violation;

6. A copy of the recorded image of the violation limited solely to a depiction of the area of the registration number displayed on the license plate of the vehicle involved in the violation;

7. The amount of the civil penalty for which the owner is liable;

8. The number of days the person has in which to pay or contest the imposition of the civil penalty and a statement that the person incurs a late payment penalty if the civil penalty is not paid or imposition of the penalty is not contested within that period;

9. A statement that the owner of the vehicle in the notice of violation may elect to pay the civil penalty by mail sent to a specified address instead of appearing at the time and place of the administrative adjudication hearing; and

10. Information that informs the owner of the vehicle named in the notice of violation:

a. Of the owner's right to contest the imposition of the civil penalty against the person in an administrative adjudication hearing,

b. That the imposition of a civil penalty may be contested by submitting a written request for an administrative adjudication hearing within thirty days after the date the notice of violation was mailed, and

c. That failure to pay the civil penalty or to contest liability for the penalty within thirty days after the date the notice of violation was mailed, or failure to appear at the requested administrative adjudication hearing to contest the imposition of the civil penalty, is an admission of liability for the full amount of the civil penalty stated in the notice of violation mailed to the person and waives the person's right of appeal the imposition of the civil penalty;

D. A person who receives a notice of violation of this chapter may pay the civil penalty in lieu of requesting an administrative hearing as provided in Section 12.21.040. (Ord. 16873 § 2 (part), 2008)

12.21.040 Administrative adjudication hearing.

A. A person who receives a notice of violation of this chapter may contest the imposition of the civil penalty specified in the notice of violation by filing a written request for an administrative adjudication hearing.

1. The request for a hearing must be filed with the entity specified on the notice of violation on or before the date specified in the notice of violation.

2. Upon receipt of a timely request, the administrative adjudication hearing may be set within one hundred twenty days and the person shall be notified of the date and time of the administrative adjudication hearing. The administrative adjudication hearing shall be held before an El Paso Municipal Court hearing officer.

3. The city council for the City of El Paso designates any employee who is employed in the position of municipal court hearing officer or are otherwise assigned the duties and responsibilities of such position as the hearing officer under this chapter. The hearing officer shall have the authority to administer oaths and to issue orders compelling the attendance of witnesses and the production of documents. An order compelling the attendance of witnesses or the production of documents may be enforced by the municipal courts.

B. The reliability of the photographic traffic signal enforcement system used to produce the recorded image of the violation may be attested to by affidavit as provided by Chapter 707 of the Texas Transportation Code. Said affidavit shall be admissible at the administrative adjudication hearing and in the appeal, if any.

C. At the end of the administrative adjudication hearing, the hearing officer shall enter a finding of either liability or no liability. Said finding must be in writing, signed and dated by the hearing officer. A finding of liability for a civil penalty must specify the amount of the civil penalty for which the person is liable. The hearing officer shall also specify the amount of any late penalties and administrative adjudication costs assessed for which the person is liable. The finding shall be filed with the municipal court clerk. All such findings shall be kept in a separate index or file by the municipal court clerk.

D. A person who fails to timely pay the amount of the civil penalty or fails to timely request an administrative adjudication hearing is entitled to an administrative adjudication hearing if:

1. The person submits a written request for the hearing to the office of the hearing officer, accompanied by an affidavit that attests to the date on which the person received the notice of violation; and

2. The written request and affidavit are submitted to the office of the hearing officer within thirty days after the person received the notice of violation.

E. A civil penalty shall not be assessed if:

1. After a hearing, the hearing officer enters a finding of no liability; or

2. Within the time prescribed in the notice of violation, the person against whom the civil penalty is to be assessed submits written proof of ownership by a person in the business of selling, renting or leasing motor vehicles or by a person who was not the person named in the notice of violation as rebuttal evidence in accordance with Section 707.013(b) of the Texas Transportation Code. (Ord. 16873 § 2 (part), 2008)

12.21.050 Affirmative defenses.

A. It shall be an affirmative defense to liability under this article, to be proven by a preponderance of the evidence, that:

1. The traffic-control signal was not in proper position and sufficiently legible to an ordinarily observant person;

2. The operator of the motor vehicle was acting in compliance with the lawful order or direction of a police officer;

3. The operator of the motor vehicle violated the instructions of the traffic-control signal so as to yield the right-of-way to an immediately approaching authorized emergency vehicle;

4. The motor vehicle was being operated as an authorized emergency vehicle under Chapter 546 of the Texas Transportation Code and the operator was acting in compliance with that chapter;

5. The motor vehicle was a stolen vehicle and being operated by a person other than the owner of the vehicle without the effective consent of the owner;

6. The license plate depicted in the recorded image of the violation was a stolen plate being displayed on a motor vehicle other than the motor vehicle for which the plate had been issued;

7. The vehicle was being operated by a person other than the owner of the vehicle;

8. The presence of ice, snow, unusual amounts of rain or other unusually hazardous road conditions existed that would make compliance with this article more dangerous under the circumstances than noncompliance;

9. The person who received the notice of violation was not the owner of the motor vehicle at the time of the violation; or

10. The operator, after stopping or standing, entered the intersection safely yielding the right-of-way to pedestrians lawfully in an adjacent crosswalk and other traffic lawfully using the intersection and turned right, or turned left where intersecting streets were both one-way streets and a left turn is permissible.

B. To demonstrate that at the time of the violation the motor vehicle was a stolen vehicle or the license plate displayed on the motor vehicle was a stolen plate, the owner must submit proof acceptable to the hearing officer that the theft of the vehicle or license plate had been timely reported to the appropriate law enforcement agency. (Ord. 16873 § 2 (part), 2008)

12.21.060 Appeal.

A. The owner of a motor vehicle determined by a hearing officer to be liable for a civil penalty may appeal that determination of liability to the El Paso Municipal Courts by filing a petition of appeal with the municipal court clerk.

B. The appeal petition must be filed:

1. Not later than the thirty-first day after the date on which the administrative adjudication hearing officer entered the finding of liability for the civil penalty; and

2. Accompanied by payment of a docketing fee of twenty-five dollars plus an appeal bond. The appeal bond must be in the amount of one hundred dollars or double the amount of the fines and costs adjudged against the owner, whichever is greater.

C. The municipal court clerk shall schedule a hearing and notify the owner of the motor vehicle and the El Paso police department of the date, time and place of the hearing.

D. An appeal stays enforcement and collection of the civil penalty and other fees assessed by the hearing officer. The owner of the motor vehicle shall file a notarized statement of personal financial obligation to perfect the owner's appeal.

1. The enforcement and collection of the civil penalty and other fees assessed by the hearing officer will not be stayed if the appeal is not perfected.

E. An appeal under this section shall be determined by the municipal courts by trial de novo. (Ord. 16873 § 2 (part), 2008)

12.21.070 Effect of liability; exclusion of civil remedy; enforcement.

A. The imposition of a civil penalty under this chapter is not a conviction and may not be considered a conviction for any purpose.

B. No civil penalty may be imposed under this chapter on the owner of a motor vehicle if the operator of the vehicle was arrested or was issued a citation and notice to appear by a peace officer for a violation of Section 544.007(d) of the Texas Transportation Code recorded by the photographic traffic monitoring system.

C. The city attorney is authorized to file suit to enforce collection of a civil penalty assessed under this chapter.

D. Any unpaid civil penalty assessed under this chapter may be enforced by refusing to allow

the registration of the vehicle as provided by applicable state law. (Ord. 16873 § 2 (part), 2008) (Ord. No. 17878, § 2, 9-18-2012)

Chapter 12.22

WIRELESS COMMUNICATIONS DEVICES

Sections

12.22.010 Definitions.

12.22.020 Use of wireless communications while driving.

12.22.010 Definitions.

In this chapter:

A. "Hands-free device" means speakerphone capability or a telephone attachment or other piece of equipment, regardless of whether permanently installed in the motor vehicle, that allows use of the wireless communication device without use of either of the operator's hands.

B. "Stop" or "stopped" means to stand an occupied or unoccupied vehicle in a location other than in a lane of traffic on a roadway.

C. "Wireless communication device" has the meaning assigned in Section 545.425 (Use of Wireless Communication Device; Offense) of the Texas Transportation Code.

(Ord. No. 17286, § 2, 3-9-2010, eff. 4-1-2010)

12.22.020 Use of wireless communications while driving.

A. An operator of a motor vehicle may not use a wireless communication device while operating a motor vehicle.

B. This section does not apply to an operator of a motor vehicle using a wireless communications device:

1. While the vehicle is stopped; or

2. That is affixed to the vehicle and used as a global positioning or navigation system.

C. It is an affirmative defense to prosecution of an offense under this section if a wireless communications device is used:

1. For obtaining emergency assistance to report a traffic accident, medical emergency, or serious traffic hazard, or to prevent a crime about to be committed;

2. In the reasonable belief that a person's life or safety is in immediate danger; or

3. Solely in a voice-activated or other hands-free mode.

D. To the extent that this section conflicts with the Texas Transportation Code Section 545.424, regarding the use of wireless communication devices while operating a motor vehicle by minors, or Texas Transportation Code Section 545.425, regarding the use of wireless communication devices in school crossing zones, or by the operators of school busses, this section does not apply.

(Ord. No. 17286, § 3, 3-9-2010, eff. 4-1-2010)

Chapter 12.24

TURNING MOVEMENTS

Sections:

12.24.010 Turn indicator placement authority.

12.24.020 No right, left or U-turn determination authority.

12.24.030 Turning left on other than two-way roadways.

12.24.040 Turning around.

12.24.050 Dual right and dual left turns.

12.24.010 Turn indicator placement authority.

A. When the traffic engineer determines that the safety or convenience of traffic would be increased by prohibiting or by requiring turns at any intersection or into or from any traffic lane at such intersection, or by specifying the direction, manner or time of making such turn, or by limiting such turns to the time and direction indicated by an arrow on a traffic light, he is authorized to place markers, signs, buttons or signals (or any combination thereof) in or at such intersection, or along the approach thereto, so as reasonably to indicate the movement required, permitted or prohibited, notwithstanding such control at the specific intersection does not conform to the general traffic rules otherwise established.

B. When such traffic indicators are so placed, no person shall drive any vehicle otherwise than in obedience thereto. (Prior code § 20-52)

12.24.020 No right, left or U-turn determination authority.

A. The traffic engineer is authorized to determine those intersections at which drivers of vehicles shall not make a right, left, or U turn, and shall place proper signs at such intersections. The making of such turns may be prohibited between certain hours of any day and permitted at other hours, in which event the same shall be plainly indicated on the signs or they may be removed when such turns are permitted.

B. Whenever authorized signs are erected indicating that no right or left or U turn is permitted, including those places specified in Schedule XIII, no driver of a vehicle shall disobey the directions of any such sign. (Prior code § 20-53)

12.24.030 Turning left on other than two-way roadways.

At any intersection where traffic is restricted to one direction on one or more of the roadways, the driver of a vehicle intending to turn left at any such intersection shall approach the intersection in the extreme left-hand lane lawfully available to traffic moving in the direction of travel of such vehicle and after entering the intersection the left turn shall be made so as to leave the intersection, as nearly as practicable, in the left-hand lane lawfully available to traffic moving in such direction upon the roadway being entered. (Prior code § 20-54)

12.24.040 Turning around.

The driver of a vehicle shall not turn such vehicle so as to proceed in the opposite direction upon any street in a business district and shall not upon any other street so turn a vehicle unless such movement can be made in safety and without interfering with other traffic. (Prior code § 20-55)

12.24.050 Dual right and dual left turns.

The traffic engineer is authorized to determine those intersections at which drivers of vehicles may make dual left or dual right turns. Signs or signals shall be erected at these intersections indicating that these turning movements are permitted or mandatory. A green turn arrow on a traffic control signal may be used in lieu of or in addition to erecting turn signs.

No driver of a vehicle in a lane other than the curb lane shall turn left or right onto a cross-street, alley or driveway except where there are signs or a green arrow authorizing dual turns. (Ord. 12244 Exh. A, 1995)

Chapter 12.26

CRUISING

Sections:

12.26.010 Purpose.

12.26.020 Definitions.

12.26.030 Cruising prohibited.

12.26.040 Affirmative defenses.

12.26.050 Demarcation of the no cruising zone.

12.26.010 Purpose.

The purpose of this section is to increase emergency vehicle and police access to certain areas ("no cruising zones") by enhancing the orderly and unobstructed flow of motor vehicle traffic throughout such areas. This will be accomplished by:

A. Reducing traffic congestion caused by an increased volume of motor vehicle traffic participating in repetitive transit throughout such areas;

B. Reducing the likelihood of preventable mishaps and crises arising from an inability of police and emergency personnel to respond to locations within such areas due to excessive traffic congestion caused by cruising;

C. Increasing access by members of the general public to such areas, which access is currently restricted due to unnecessary traffic congestion arising from cruising. (Ord. 15110 § 1 (part), 2002)

12.26.020 Definitions.

A. For the purposes of this section, the following terms, phrases, words and their derivations shall have the meaning given herein. When not inconsistent with the context, words used in the present tense include the future; words in the plural number include the singular; and words in the singular number include the plural.

B. "Cruise" or "cruising" means to operate a motor vehicle, or to permit the operation of a motor vehicle under one's care, custody or control, so as to pass the same traffic control point within a no cruising zone three times within any two-hour period.

C. "Traffic control point" means any point established by the chief of police or a commander of a police department regional command center within a no cruising zone for the purpose of monitoring cruising. Such points shall be located within the same city block as a sign posted in accordance with Section 12.26.050 of this code.

D. "No cruising zone" means the following areas:

1. Lee Trevino Drive between Gateway Boulevard West and Pebble Hills Boulevard;

2. Delta Drive between Alameda Avenue and Boone Street;

3. North Mesa Street between Sunbowl Drive and Schuster Avenue;

4. North Mesa Street between Thunderbird Drive and Camille Drive;

5. Sunland Park Drive between the intersection of the exit ramp from the westbound lanes of Interstate Highway 10 with Sunland Park Drive to Crestmont Drive;

6. North Mesa Street between South Desert Boulevard and Doniphan Drive;

7. Yarbrough Drive between Alameda Avenue and North Loop Drive;

8. Zaragoza Road between Alameda Avenue and North Loop Drive;

9. Alameda Avenue between Delta Drive and Little Flower Road;

10. Alameda Avenue between Americas Avenue and Old Pueblo Road;

11. Americas Avenue between Alameda Avenue and Socorro Road;

12. Montana Avenue between Lee Trevino Drive and Trowbridge Avenue;

13. Dyer Street between Pershing Drive and Hondo Pass Avenue; and

14. Doniphan Drive between Sunland Park Drive and the El Paso city limits located 256 feet north of Mowad Road. (Ord. 15110 § 1 (part), 2002)

12.26.030 Cruising prohibited.

A. A person commits an offense under this section, if between the hours of nine p.m. and three a.m. on any day of the week, he or she cruises, as defined herein, in a "no cruising zone" marked in accordance with Section 12.26.050 of this code.

B. Enforcement of this section may occur any time after a police officer has determined that a person has passed a traffic control point, either by operating or permitting the operation of a motor vehicle, three or more times within a two-hour period. (Ord. 15110 § 1 (part), 2002)

12.26.040 Affirmative defenses.

It shall be an affirmative defense to prosecution under this section that the motor vehicle was:

A. Owned by the state of Texas, a municipality, a county, or other political subdivision of the state, or the United States Government;

B. An emergency or conspicuously marked public safety or utility vehicle;

C. A licensed public transportation vehicle;

D. Being used for business or employment purposes and verification of this business or employment is established;

E. Being used for the direct travel to and from or the driving of another directly to and from an official school, civic or religious activity;

F. Being used for the direct travel to or from or the driving of another directly to and from an activity involving the exercise of First Amendment rights protected by the United States Constitution, including the free exercise of religion, freedom of speech, and the right of assembly;

G. Involved in an emergency situation, such as driving oneself or others to and from a hospital; or

H. Being used for the direct travel to and from a place of business that is open to the public at the time of the travel for the purpose of conducting business at that business. (Ord. 15110 § 1 (part), 2002)

12.26.050 Demarcation of the no cruising zone.

The traffic engineer shall mark a no cruising zone by conspicuously posting appropriate signs at each entrance to the zone and at least one additional sign located approximately every three city blocks within the no cruising zone. (Ord. 15110 § 1 (part), 2002)
(Ord. No. 17394, § 6, 8-24-2010, eff. 9-1-2010)

Chapter 12.28

SPEED LIMITS

Sections:

12.28.010 Generally.

12.28.020 School crossing zones.

12.28.030 On certain bridges.

12.28.040 In city parks.

12.28.010 Generally.

A. The state traffic laws regulating the speed of vehicles shall be applicable upon all streets within this city, except as indicated in subsection C below, in Schedule XIV, Section 12.88.150, or as other ordinances may provide. However, specified speed regulations shall be applicable upon specified streets or in certain areas, in which event it shall be prima facie unlawful for any person to drive any vehicle at a speed greater or lesser than so specified.

B. The traffic engineer may, subject to the approval of the city council, designate speed limits by signs. The traffic engineer may, on the basis of engineering and traffic investigations, designate the speed regulations upon any street or portion of a street by erecting signs giving notice thereof.

C. When the traffic engineer or his designee, finds, at the platting stage, that a new residential street meets the code requirements for use, any new residential street subsequently built to the design standards set forth in this code, Title 19 (Subdivision Code), Section 19.15.030, local 2 or local 3, effective June 1, 2008, or later, and

1. Which is not an officially designated or marked highway or road of the state highway system;

2. Which is thirty-five feet or less in width;

3. Along which vehicular parking is not prohibited on one or both sides of the street; and

4. Which has less than four lanes.

Shall have a speed limit of twenty-five miles per hour, effective when signs are erected giving notice of the limit. (Ord. 16908 § 2, 2008: prior code § 20-48)

12.28.020 School crossing zones.

A. Whenever traffic engineering investigation discloses a need for particular safety precautions for the safety of school children, the department of transportation is empowered to mark such locations as school crossing zones as directed by the traffic engineer; provided, however, no such school crossing zones shall be established at any intersection approach controlled by stop signs.

B. When such school crossing zones are established, they shall be appropriately marked by traffic control signs or devices, indicating that school is in session, and the prima facie speed limit within the school crossing zone. If deemed necessary by the traffic engineer, such traffic-control devices may include flashing yellow lights. All such traffic-control signs and devices shall be of a size and type approved by the traffic engineer.

C. The regulations imposed by such traffic-control signs and devices shall become effective forty-five minutes before the opening of the first class and shall cease to be effective thirty minutes after the end of the last school class.

D. When such school crossings are established and when signs indicate that regulations are in force, no vehicle shall proceed at a speed in excess of that posted on such signs when approaching the crosswalk and while between the first such sign and the crosswalk.

E. Whenever signs indicate that the regulations are in force, no vehicle shall pass any other vehicle proceeding in the same direction between the signs designating the school crossing zone, and all vehicles shall come to a complete stop at the school crossing when the crosswalk is occupied by any person. (Ord. 13152 § 99, 1997; prior code § 20-49)
(Ord. No. 17394, § 7, 8-24-2010, eff. 9-1-2010)

12.28.030 On certain bridges.

No person shall drive any vehicle on the part of the bridge described in Section 12.40.070 within the city limits at a speed greater than ten miles per hour. (Prior code § 20-50)

12.28.040 In city parks.

It is unlawful for any person to operate, or cause to be operated within the limits of any city park in the city, any motor vehicle in excess of fifteen miles per hour. (Prior code § 20-51)

Chapter 12.30

TEMPORARY TRAFFIC CONTROL

Sections:

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12.30.010 Definitions.

A. "Permittee" means the governmental entity, utility company, contractor, person or business entity that has received a temporary traffic control permit pursuant to this chapter.

B. "Person" means associations, clubs, societies, firms, contractors, governmental agencies, traffic barrier supply companies, partnerships, corporations, other business entities as well as individuals or groups of individuals.

C. "Temporary traffic control plan" means a plan describing temporary traffic control measures to be used for facilitating pedestrian and vehicular users through a work zone or other activity in a public right-of-way.

D. "Traffic engineer" shall have the same meaning as found in Section 12.04.190 and shall also include, for purposes of this chapter, those people designated by the traffic engineer.

E. "Work" means any activity that requires placement of barriers in the public right-of-way and/or any construction activities within the public right-of-way.

(Ord. No. 17489, § 1, 1-18-2011)

12.30.020 State manual.

The Manual on Uniformed Traffic Control Devices (MUTCD), Chapter 6 (Temporary Traffic Control), in the version adopted by the Texas Department of Transportation shall govern the operations of all contractors, subcontractors, public utility companies, including, but not limited to the El Paso Public Service Board/El Paso Water Utilities, railroads, state and city agencies and any other person who is engaged in work subject to the MUTCD within the city.

(Ord. No. 17489, § 1, 1-18-2011)

12.30.030 Permit required.

No person shall (1) conduct work within the city right-of-way or (2) otherwise occupy the public right-of-way that impedes or limits the general public from traversing the right-of-way without a traffic control permit issued by the permit official. Permits shall be required in connection with all governmental work, including but not limited to the city (including the El Paso Public Service Board/El Paso Water Utilities), schools, universities, hospitals, water improvement districts, county, state and federal public works projects, all private sector work, and for such events as block parties, parades or other such temporary events that require the use of any portion of the public right-of-way. No permit shall be issued until a temporary traffic control plan is approved by the traffic engineer. Denial of a proposed temporary traffic control plan and the requested permit by the traffic engineer shall include the grounds for the denial.

The issuance of the permit shall require the permittee to comply, implement and maintain the temporary traffic control plan.

A. State right-of-way. When the work proposed is within or adjacent to or impacting a state right-of-way, a copy of a Texas Department of Transportation approved permit to work within or adjacent to or impacting such state right-of-way shall be provided to the traffic engineer before a temporary traffic control permit may be issued.

B. El Paso Department of Transportation: All work by contractors under contract with the city, including those performing construction under the direction of the El Paso Department of Transportation, shall obtain a temporary traffic control permit pursuant to the requirements of this section. When the El Paso Department of Transportation uses city employees to perform work, it shall be required to obtain a temporary traffic control permit for restoration of the surface of streets, installation of traffic signalization and all other work within the right-of-way other than work that creates minimal disruption of traffic, such as sign repair and replacement, graffiti removal, patching and sealing the streets, minor operational maintenance and installation and the installation or repair of pavement markings. The fees, bond and insurance requirements of this section shall not apply to the El Paso Department of Transportation but shall be required of its construction contractors.

C. TxDOT. The Texas Department of Transportation and their contractors shall not be subject to the requirements of this Section for work they perform within TxDOT owned right-of-way within the City of El Paso.

D. Parade and public assembly permits, film making permits and events produced by the City of El Paso Museums and Cultural Affairs Department. Temporary traffic control permits are not required for a filmmaking permit issued pursuant to Chapter 13.30 for parade permits and public assembly permits issued pursuant to Chapter 13.36 or for events produced by the City of El Paso Museums and Cultural Affairs Department under Chapter 2.40.100 or other ordinance or resolution of city council.

(Ord. No. 17489, § 1, 1-18-2011; Ord. No. 17583, § 1, 6-14-11)

12.30.040 Failure to obtain a temporary traffic control permit.

A. It shall be a violation of this chapter for any person to perform any work in the public right-of-way, occupy the public right-of-way, as described in Section 12.30.030, or to place traffic control devices, such as barricades, in the public right-of-way without first obtaining a traffic control permit except as otherwise provided by state statute or City Code. Persons providing traffic control devices shall not place traffic control devices in the public right-of-way until the person who is performing the work in the public right-of-way has obtained a traffic control permit. Persons providing traffic control services to persons performing work in the right-of-way may obtain the traffic control permit as the agent for the person performing such work provided that they submit written proof of such agency to the permit official when applying for a permit.

1. When no traffic control permit has been issued by the city, the traffic engineer may stop all work, remove or place traffic control devices and provide such other traffic control as deemed necessary for safety in the public right-of-way. The work at a site where no traffic control permit was obtained may be stopped by the traffic engineer until a traffic control permit is issued.

2. If no application is made for a traffic control permit within one city working day after issuance of a stop work order, the city may repair the street if any construction had commenced and remove barricades. The person placing the barriers in the city right-of-way and the person performing work in the city right-of way shall be jointly and severally liable to the city for payment of all costs the city incurs in responding to the work site for which no traffic control permit was issued.

B. Nothing in this chapter shall be construed to prohibit or limit the authority of law enforcement agencies to stop work and control the work site in the event of an emergency or in the course of law enforcement activities.
(Ord. No. 17489, § 1, 1-18-2011)

12.30.050 Permit application.

A. Filing an application. An application for a temporary traffic control permit shall be made in writing on a form prescribed by the permit official at least forty-eight hours before the proposed commencement of work within the public right-of-way.

B. All applications shall be signed by the applicant and be accompanied by payment of the established nonrefundable application fee.

C. Late application. Notwithstanding the preceding subsection, the permit official may consider an application that is filed in less than forty-eight hours before the proposed commencement of work if the short notice does not unreasonably hinder the city's review of the application.

D. Application form. The application and accompanying documentation shall include the following:

1. Name, address, telephone numbers and e-mail address of the contractor, the person or people in charge of the work or activity within the public right-of-way and the name and contact person for the barricade company responsible for traffic set up.

2. Location where the barricades will be placed, including the street address of the property or adjacent property.

3. Description of work or activity in the city right-of-way.

4. Duration and schedule of work or activity in the city right-of-way.

5. Type of closure needed.

6. The traffic control plan.

7. Certificates of insurance and permit bond.
(Ord. No. 17489, § 1, 1-18-2011)

12.30.060 Permit bond and insurance required.

A. Bond requirements. Except as provided in subsection 12.30.060 D. hereafter, no traffic control permit shall be issued under this chapter to any person applying for a traffic control permit until such applicant has filed with the traffic engineer a bond in the amount of fifty thousand dollars, signed by a surety company authorized to do business in Texas. The city shall be named as the obligee under such bond. The bond shall provide that the principal and its agents, employees, and subcontractors shall comply with all provisions of this chapter, that the principal shall pay all damages which are sustained by the city and which are caused by failure of the principal, its agents, employees or subcontractors to comply with the provisions of this chapter, and that the principal shall indemnify the city against claims arising out of such failure to comply. The surety shall be acceptable to the city as to solvency and such surety shall be listed on the current Department of the Treasury's Listing of Approved Sureties, Department Circular 570, United States Department of the Treasury or its successor publication, ("Circular 570"). If the city becomes dissatisfied that the surety is solvent or the surety is no longer included in Circular 570, the Traffic Engineer may require a bond from another surety listed in Circular 570. Permit applicants who have provided a bond to the city pursuant to the requirements of a chapter of the City Code other than this chapter that meets all of the requirements established in this chapter shall not be required to obtain an additional bond but are required to provide a copy of such bond, provided that such bond specifically includes coverage for the permit or permits issued pursuant to this chapter. Permittees who have multiple temporary traffic control permits are required to provide only one current valid bond for all such permits but may be required to provide a copy of the current bond with each application for a temporary traffic control permit.

B. Insurance requirements. Except as provided in subsection 12.30.060 D. hereafter, no permit applicant shall be issued a permit until the

applicant presents evidence satisfactory to the traffic engineer that the applicant meets the following minimum insurance requirements:

1. The applicant shall procure and shall maintain during the term of the permit such commercial general liability, property damage liability and vehicle liability insurance, naming the permittee and any subcontractor performing work associated with the permit as insured, co-insured or additional insured for claims for damages for personal injury, including accidental death, as well as from claims for property damage that may arise from work associated with the permit.

2. Minimum limits of liability and coverage shall be two hundred fifty thousand dollars for bodily injury liability, including death, for each person and five hundred thousand dollars in the aggregate and one hundred thousand dollars for property damage for each occurrence and one hundred thousand dollars in the aggregate. Permit applicants that are governmental entities may comply with the insurance requirements of this section by providing certification that they are self-insured.

3. Such insurance shall be written by an accredited insurance company under the supervision of the Board of Insurance Commissioners of the State of Texas. Evidence of compliance with these insurance requirements shall be considered as having been met when copy of the insurance policy or a certificate of insurance has been filed with and approved by the traffic engineer. Such policy shall include an endorsement that the city is named as an additional insured to the full amount of the policy limits and that traffic engineer shall be notified at least thirty days in advance in the event the policy or policies are canceled and ten days in advance for non-payment of policy premiums. The required endorsement shall be provided to the traffic engineer. The permittee shall maintain said insurance with a solvent insurance company authorized to do business in Texas. The policy shall provide that the insurer will defend against all claims and lawsuits which arise and will pay any final judgment of a court of competent jurisdiction against the city, its officers, agents, servants or employees and permittee, his officers, agents, servants or employees. Failure to keep the policy in full force and effect throughout the term of the permit shall be grounds for cancellation of the permit.

4. Permit applicants who have provided certificates of insurance to the city pursuant to the requirements of a chapter of the City Code other than this chapter that meet all of the requirements established in this chapter shall not be required to obtain an additional insurance but are required to provide such certificates of insurance showing present coverage as required in this chapter. Permittees who have multiple temporary traffic control permits are required to provide only one current valid certificate of insurance for all such permits but may be required to provide a copy of the current certificate of insurance with each application for a temporary traffic control permit.

5. Self-insurance. A Permittee may satisfy the vehicle insurance requirements of this section by providing the city with a current "Self-insurance Certificate" issued by the Texas Department of Public Safety or its successor agency. A permittee may satisfy the worker's compensation insurance requirements of this section by providing the city with a current "Certificate of Authority to Self-insure" issued by the Texas Department of Insurance, Division of Worker's Compensation or its successor agency.

C. Temporary and special events. Those traffic control permits issued for temporary and special events where construction work is not conducted within the right-of-way, such as a block party, film making or parade, shall be exempt from the requirements in this section concerning bonds and insurance coverage but shall meet requirements for bonds and insurance as may exist under other applicable provisions of the City Code.

D. Traffic control permits shall be required in connection with all city (including El Paso Public Service Board/El Paso Water Utilities), county, state or federal public works projects provided that no permit fee or bond shall be required for

such projects. Permit applicants that are governmental entities and are self-insured may comply with the insurance requirements of this section by providing certification that they are self-insured.
(Ord. No. 17489, § 1, 1-18-2011; Ord. No. 18383, § 1a), 7-7-2015)

12.30.070 Permit fees.

The following fees are established and shall be charged:

A. Temporary traffic control permit fees. A fee for temporary traffic control permits shall be charged at the time the application for the permit is submitted. The permit fees shall be based on the duration of the permit with fees for permits based on the number of days for which the permit was issued. No permit shall be issued for a period longer than six months. Permittees requiring additional time beyond the term of the permit shall apply for a new permit and shall pay the permit fee applicable to the new permit.

B. Exemptions. City departments, public utilities with city or state franchises for use of the right-of-way and state agencies and any construction contractor under contract with the city, such public utilities or an agency of the state shall be exempt from paying the fees authorized under this section. Those traffic control permits issued for temporary and special events where construction work is not conducted within the right-of-way, such as a block party, film making or parade, shall be exempt from the fee requirements in this section but shall meet the applicable fee requirements under other provisions of the City Code.
(Ord. No. 17489, § 1, 1-18-2011; Ord. No. 18383, § 1b), 7-7-2015)

12.30.080 Approval or denial of temporary traffic control plan.

A. The permit official shall approve or deny a completed application within one city working day of the permit official's receipt of the completed application for permit. A notice of denial shall clearly set forth the grounds upon which the permit was denied and, when applicable, shall contain measures by which the applicant may cure any defects in the application or otherwise procure a permit.

B. The permit official may attach reasonable conditions to any permit approval as may be appropriate to address the purpose for which this chapter has been adopted, including but not limited to requirements concerning notification of lane closure to affected property owners and occupants, access to adjacent property and advance notice of lane closures.
(Ord. No. 17489, § 1, 1-18-2011)

12.30.090 Duties of permittee.

The permittee shall conform to the regulations as defined in the MUTCD, Chapter 6, or as the Traffic Engineer indicates on the approved temporary traffic control plan.
(Ord. No. 17489, § 1, 1-18-2011)

12.30.100 Hours of work.

A. Work restrictions during peak hours:

1. When construction is required that will block one or more lanes of an arterial roadway, the hours of operation shall be limited on weekdays to avoid conflict with peak hour traffic movements. Such work on weekdays is prohibited from 6:00 a.m. to 9:00 a.m. and 4:00 p.m. to 6:30 p.m. and any other peak hour traffic periods designated by the traffic engineer.

B. Exemptions:

1. Projects with a work duration as defined in Section 6G.02 of the MUTCD as intermediate-term stationary and long-term stationary may be exempt from the peak hour work restrictions.

2. Traffic engineer may exempt work from the peak hour restrictions on a case-by-case basis for projects described in subsection B.1. and for other projects based on the nature of the construction and traffic volume in the area of the construction.
(Ord. No. 17489, § 1, 1-18-2011)

12.30.110 Emergencies.

An emergency exists when rapid deterioration of the roadway or infrastructure within the city's

right of way occurs and such deterioration, left uncorrected, is causing or will cause further damages within the right-of-way to the extent that the public welfare and safety will be adversely affected. When an emergency occurs that requires total or partial road closures on a roadway no permit shall be required prior to beginning work needed to respond to the emergency. The traffic engineer shall be notified of the emergency as soon as possible. The limitations on hours of work in this chapter shall not apply to work required in response to an emergency. Every effort should be made to make repairs as soon as possible and a traffic control plan shall be submitted with an application for a permit during regular city working hours before the close of business on the next city business day after the day the emergency occurred.
(Ord. No. 17489, § 1, 1-18-2011)

12.30.120 Correction of violations, removal of traffic control devices, fees.

A. Violation of any regulation contained in the MUTCD or pursuant to the requirements of the city approved temporary traffic control plan or permit requirements shall be corrected by permittee within two hours after receipt of written notice from the traffic engineer or his duly authorized representative that a violation exits.

B. When the correction of violations is not made within the two hours specified in subsection A. and the city must take action to correct the violation, the city is authorized to charge fees as established related to traffic control and the placement of traffic control devices by the city.

C. Whenever a violation of this chapter occurs, the city shall be entitled to correct the existing deficiencies upon the failure on the part of the permittee to correct any such violation within the two-hour period described in this section. Permittee shall pay the city for its costs of correcting the deficiencies within ten city working days of receiving an itemized statement for such costs.

D. Fees. When barricades or other traffic control devices are left within vehicular travel lanes or sidewalk area of a public right-of-way beyond the period authorized by a traffic control permit, the city is authorized to remove such traffic control devices and charge the established noncompliance correction fee and a lane/sidewalk rental fee. The permittee shall pay to the city all costs of removal and storage of traffic control devices. The city shall be entitled to use or sell such traffic control devices that are not claimed and/or when the removal and storage costs are not paid within ninety days from the date of removal by the city. If the traffic engineer knows the identity of the owner of the traffic control device, he shall give such owner written notice of the removal of the traffic control device, the fees owed and where the traffic control device may be obtained. The owner of the traffic control devices shall be allowed to obtain the traffic control devices before disposition of such devices by the city if payment to the city of the fees required in this section is made within the time limits established herein. Traffic control devices left in the public right of way that are not within an approved permit area or otherwise authorized by the city in writing may be removed by the city and the provisions of this section shall apply to such traffic control devices.
(Ord. No. 17489, § 1, 1-18-2011)

12.30.130 Stop work order.

The traffic engineer may order a cessation of work for which the traffic control permit was issued when the permittee fails to comply with the requirements of the permit and traffic plan or when there is an imminent hazard. The stop work order shall continue in effect until the noncompliance is corrected by the permittee. Stop work orders shall not be subject to the two-hour correction period established in Section 12.30.120. The traffic engineer may order the removal, relocation or addition of traffic control devices during the time of the stop work order as needed to protect traffic from work accomplished to the time of the issuance of the stop work order.
(Ord. No. 17489, § 1, 1-18-2011)

12.30.140 Nonconforming devices.

A. No person shall place, maintain, or display upon or in view of any construction site, any temporary traffic control devices that the traffic engineer determines are substandard, damaged, worn out, faded, or otherwise nonconforming.

B. The city shall be entitled to issue a notice of violation by red-tagging any temporary traffic control device which is in violation of this section, and such violation shall be corrected within four-hours by the violator after receipt of notice of the red tag.
(Ord. No. 17489, § 1, 1-18-2011)

12.30.150 Interference with traffic control devices.

It shall be a violation for any person to alter, deface, injure, damage or remove any traffic control devices, including, but not limited to, barricades or signs or warning signs that have been placed upon or in the area of temporary traffic control or detour or construction zone, provided that the city and permittee may move, relocate and repair traffic control devices in accordance with the permit or the direction of the permit official, the traffic engineer or a police officer.
(Ord. No. 17489, § 1, 1-18-2011)

12.30.160 Violation.

It shall be a violation for any person to work in the public right of way without a permit, except as provided in Section 12.30.110 (emergencies), fail to comply with a traffic control plan, work in violation of a stop work order, use nonconforming devices or devices that have received a red tag or to work in the public right-of-way during hours that are prohibited by this chapter and in the traffic control plan unless such work is specifically excluded from the provisions of this chapter. Any person who violates a provision of this chapter shall, upon conviction, be guilty of a misdemeanor and punished by a fine not to exceed five hundred dollars. Each day the violation occurs shall constitute a separate offense.
(Ord. No. 17489, § 1, 1-18-2011)

12.30.170 Enforcement authority.

The permit official shall have authority to enforce this chapter.
(Ord. No. 17489, § 1, 1-18-2011)

Chapter 12.32

PEDESTRIANS

Sections:

12.32.010 When to yield.

12.32.020 Crossing at right angles.

12.32.030 Prohibited crossings.

12.32.040 Obedience to bridge and railroad signals.

12.32.050 Blind persons.

12.32.060 Reserved.

12.32.062 Soliciting rides or business—Construction.

12.32.063 Solicitation prohibitions.

12.32.070 Reserved.

12.32.010 When to yield.

A. Every pedestrian crossing a roadway at any point other than within a marked crosswalk or within an unmarked crosswalk at an intersection shall yield the right-of-way to all vehicles upon the roadway.

B. The foregoing rules in this section have no application under the conditions stated in Section 12.32.030 when pedestrians are prohibited from crossing at certain designated places. (Prior code § 20-109)

12.32.020 Crossing at right angles.

No pedestrian shall cross a roadway at any place other than by a route at right angles to the curb or by the shortest route to the opposite side, except that within the central traffic district when permitted by a pedestrian "walk" signal, a pedestrian may cross diagonally from one corner to any other corner at that intersection. (Prior code § 20-108)

12.32.030 Prohibited crossings.

A. Between adjacent intersections at which traffic-control signals are in operation, pedestrians shall not cross at any place except in a crosswalk.

B. No pedestrian shall cross a roadway other than in a crosswalk in the central traffic district or in any business district.

C. No pedestrian shall cross a roadway other than in a crosswalk upon any designated through street.

D. No pedestrian shall cross a roadway at a point where a pedestrian tunnel or overhead pedestrian crossing has been provided. (Prior code § 20-110)

12.32.040 Obedience to bridge and railroad signals.

A. No pedestrian shall enter or remain upon any bridge or approach thereto beyond the bridge signal, gate, or barrier after a bridge operation signal indication has been given.

B. No pedestrian shall pass through, around, over or under any crossing gate or barrier at a railroad grade crossing or bridge while such a gate or barrier is closed or is being opened or closed. (Prior code § 20-111)

12.32.050 Blind persons.

A. The carrying of a white walking stick or cane having a visible red stripe thereon by any person shall signify that such person is blind.

B. It is unlawful for any person, other than a blind person, to carry on any street or sidewalk a white walking stick or cane having a visible red stripe thereon.

C. The operator of any vehicle shall yield the right-of-way of any street or alley within the city to any unassisted blind pedestrian, except at intersections controlled by a signal light or a police officer, whenever such blind pedestrian shall indicate by holding aloft a white walking stick or cane having thereon a visible red stripe, that he is about to cross the street, and it shall be the duty of the operator of any vehicle to immediately stop such vehicle and remain standing until such blind pedestrian has reached a point of safety.

D. The word "vehicle" as used herein shall include all motor-driven and horse-drawn vehicles, streetcars and bicycles. (Prior code § 20-113)

12.32.060 Reserved.

Editor's note—Ord. No. 17886, § 1, adopted October 9, 2012, repealed § 12.32.060, which pertained to soliciting rides or business—prohibitions and derived from prior code § 20-112; Ord. 8984, 1987; Ord. 9097, 1987; Ord. 10752 § 1, 1991.

12.32.062 Soliciting rides or business—Construction.

Severability is intended throughout and within the provisions of the soliciting rides or business ordinance. If any provision, including inter alia any subsection, part, phrase, term or word, or the application thereof to any person or circumstances is held invalid or unconstitutional by valid judgment or decree of a court of competent jurisdiction, such holding shall not affect the validity of the remaining portions of the ordinance, and such remaining portions shall remain in full force and effect. (Ord. 10752 § 2, 1991)

12.32.063 Solicitation prohibitions.

A. Definitions. As used in this chapter, the following words, terms, and phrases should have the following meanings:

1. Aggressive manner means:

a. Making any physical contact with or touching another person while in the course of soliciting without the other person's, operator's, or passenger's consent; or

b. Following a person, group, operator, or passenger being solicited, if the conduct is:

i. Reasonably likely to cause fear of imminent bodily injury or theft; or

ii. Reasonably likely to intimidate the person, group, operator, or passenger being solicited; or

c. Continuing to solicit from a person, operator, or passenger of a motor vehicle, after the person, operator, or passenger has made a negative response such as to constitute threatening conduct; or

d. Blocking the passage of a person, group, operator, or passenger of a motor vehicle; or

e. Using abusive or obscene language or bodily gestures towards a person, group, operator, or passenger of a motor vehicle such as to constitute threatening conduct; or

f. Approaching a person, group, operator, or passenger of a motor vehicle in a manner:

i. That is likely to put a reasonable person in fear of imminent harm or theft or

ii. Is reasonably likely to intimidate into responding in the affirmative.

2. Adult means a person who is eighteen years of age or older.

3. Intimidate means conduct which threatens the person solicited.

4. Median means a dividing area, whether landscaped or paved, maintained for the purpose of separating or directing vehicular traffic.

5. Minor means a person who is below the age of eighteen.

6. Public place means an area to which the public has access and includes, but is not limited to, a sidewalk, street, highway, park, parking lot, alleyway, pedestrian way, or the common area of a school, hospital, apartment house, office building, transport facility, or shop.

7. Solicitation or solicit mean to request, by the spoken, written, or printed word, or by other means of communication, an immediate donation or transfer of money or another thing of value from another person, regardless of the solicitor's purpose or intended use of the money or other thing of value, and regardless of whether consideration is offered.

8. Threatening conduct means conduct which would make a reasonable person fearful of harm to his person or property.

B. Solicitation prohibitions.

1. A person commits an offense if the person solicits:

a. In an aggressive manner in a public place; or

b. From a median in a street open to the public or within fifteen feet of a street corner on a street open to the public;

c. Upon any commercial property within the city when such property is affixed with conspicuously posted signage stating "NO SOLICITING ALLOWED," that notifies that solicitation is not permitted on the property, or is otherwise permit-

ted only in restricted areas of the property. Such signs shall have bold lettering of not less than one inch in height as follows:

i. "NO SOLICITING ALLOWED. VIOLATIONS ARE SUBJECT TO FINE PURSUANT TO THE EL PASO CITY CODE 12.32.063." The sign shall comply with the permit requirements under Section 20.18.400 of the El Paso City Code.

d. No occupant of a motor vehicle may contribute to, accept or purchase material from any other person who is on any public roadway, or from a person twelve years of age or younger who is on the surrounding sidewalks, medians, islands and unpaved roadway, while the motor vehicle is stopped in obedience to a traffic control signal.

e. It is unlawful for a person, without the effective consent of an occupant, to intentionally or knowingly touch or strike or cause an object to touch or strike a vehicle stopped on a public roadway in obedience to a traffic control signal light, during an act of soliciting rides or business from the occupants of the vehicle.

2. A culpable mental state is not required, and need not be proved, for an offense under this section.

3. The penalty for violation of this ordinance is provided in Chapter 1.08 of this Code.

C. Solicitation prohibitions—Construction. Severability is intended throughout and within the provisions of the soliciting rides or business ordinance. If any provision, including inter alia any subsection, part, phrase, term or word, or the application thereof to any person or circumstances is held invalid or unconstitutional by valid judgment or decree of a court of competent jurisdiction, such holding shall not affect the validity of the remaining portions of the ordinance, and such remaining portions shall remain in full force and effect.

(Ord. No. 17886, § 2, 10-9-2012; Ord. No. 17992, § 1, 4-30-2013)

12.32.070 Reserved.

Editor's note—Ord. No. 17101, § 1, passed April 7, 2009, repealed § 12.32.070 in its entirety. Formerly said section pertained to crosswalk on Piedras Street at Grant Avenue and derived from Prior Code § 20-114.

Chapter 12.36

ONE-WAY STREETS

Sections:

12.36.010 Placing signs required.

12.36.020 Moving in indicated direction.

12.36.030 Restricting direction at certain times.

12.36.010 Placing signs required.

Whenever any ordinance of this city designates any one-way street or alley the traffic engineer shall place and maintain signs giving notice thereof, and no such regulation shall be effective unless such signs are in place. Signs indicating the direction of lawful traffic movement shall be placed at every intersection where movement of traffic in the opposite direction is prohibited. (Prior code § 20-56)

12.36.020 Moving in indicated direction.

Upon those streets and parts of streets and in those alleys described in Schedule I, Section 12.88.010, vehicular traffic shall move only in the indicated direction when signs indicating the direction of traffic are erected and maintained at every intersection where movement in the opposite direction is prohibited. (Prior code § 20-57)

12.36.030 Restricting direction at certain times.

A. The traffic engineer is authorized to determine and designate streets, parts of streets or specific lanes thereon upon which vehicular traffic shall proceed in one direction during one period and the opposite direction during another period of the day and shall place and maintain appropriate markings, signs, barriers or other devices to give notice thereof. The traffic engineer may erect signs temporarily designating lanes to be used by traffic moving in a particular direction, regardless of the centerline of the roadway.

B. It is unlawful for any person to operate any vehicle in violation of such markings, signs, barriers or other devices so placed in accordance with this section. (Prior code § 20-58)

Chapter 12.40

SIZE, WEIGHT AND CLASS RESTRICTIONS

Sections:

12.40.010 Authority to regulate use of roadways by classes of traffic.

12.40.020 Establishment and revision of truck routes.

12.40.030 Large vehicles—Permit—Required.

12.40.040 Large vehicles—Maximum length.

12.40.050 Large vehicles—Maximum width and height.

12.40.060 Large vehicles—Maximum weight.

12.40.070 Maximum vehicle weights allowed on certain bridges and streets.

12.40.080 Large vehicles—Permit—Considerations in refusing permit.

12.40.090 Vehicles restricted to truck routes—Exceptions.

12.40.100 Vehicles transporting hazardous materials—Restriction to certain routes.

12.40.110 Vehicles transporting hazardous materials—Authority to leave special truck routes.

12.40.120 Vehicles transporting flammable liquids—Inside valves and safety devices required.

12.40.130 Vehicles operated with unsecured loads.

12.40.140 Vehicles laden with sand—Restricted to use of certain streets—Exception.

12.40.150 Vehicles laden with sand—Removal of spilled materials.

12.40.010 Authority to regulate use of roadways by classes of traffic.

A. The traffic engineer is authorized to determine and designate those heavily traveled streets upon which shall be prohibited the use of the roadway by motor-driven cycles, bicycles, horse drawn vehicles, or other nonmotorized traffic and shall erect appropriate signs giving notice thereof.

B. When signs are so erected giving notice thereof, no person shall disobey the restrictions stated on such signs. (Prior code § 20-130)

12.40.020 Establishment and revision of truck routes.

The traffic engineer is authorized and required to establish truck routes and make periodic reviews of established truck routes within the city limits. The traffic engineer shall submit written recommendations to the city council for all establishment, changes, alterations, elimination and improvements of truck routes based on changing conditions and factors affecting the need for such routes in such places and in such number as may be determined to be of the greatest benefit and convenience to the public. The city council shall approve the truck routes by amendments to Section 12.88 (Schedules). (Ord. 13152 § 100, 1997; prior code § 20-131.1)
(Ord. No. 17364, § 1, 7-27-2010)

12.40.030 Large vehicles—Permit—Required.

A. Vehicles, with or without trailers, exceeding forty-five feet in length, or eight feet in width, or thirteen feet six inches in height shall not be operated within the central traffic district; however, such vehicles may be operated within such district upon issuance of a written permit from the chief of police or his designated agent.

B. Vehicles, with or without trailers, exceeding twenty-six feet in length, eight feet in width, or thirteen feet six inches in height shall not be operated on any of the streets listed in Schedule VII, Section 12.88.070; provided, however, such vehicles will be allowed to operate upon such street if such vehicle is making a pickup or delivery on

such streets or must use such streets to gain the only available access to a destination where the vehicle will be making a pickup or delivery.

C. Trucks, with or without trailers, including pickup trucks, exceeding an overall length of eighteen feet shall not be operated on any street or part of any street listed in Schedule VIIA, Section 12.88.071; provided, however, such trucks will be allowed to operate upon such streets if such a truck is making a pickup or delivery on such streets, or must use such streets to gain the only available access to the destination where the truck will be making a pick-up or delivery, has a point of origin or destination on that street, or must use such street to gain the only available access to that point of destination or from that point of origin.

D. Vehicles with or without trailers, exceeding twenty-six feet in length, eight feet in width, or thirteen feet six inches in height shall not be operated on any of the streets listed in Schedule VIIB, Section 12.88.072, between the hours of eight p.m. and six a.m.

E. Provided, further, that this section shall not apply to vehicles of a political subdivision of the state performing a function of their entity.

F. Vehicles with or without trailers, exceeding forty-five feet in length, or eight feet in width, or thirteen feet six inches in height shall not be operated within the following districts; provided, however, such vehicles may be operated within such district upon issuance of a written permit from the chief of police or his designated agent:

1. South El Paso district;

2. Piedras-Alameda district. (Ord. 11071 § 2, 1992; Ord. 19057 § 2, 1992; Ord. 9559 § 1, 1988: Ord. 8207 § 1, 1984; Ord. 8148 § 1, 1984; prior code § 20-132)

12.40.040 Large vehicles—Maximum length.

A. No person shall operate any motor vehicle, truck-tractor, trailer or semitrailer on any street or alley within the city if the length thereof exceeds the maximum length of sixty-five feet.

B. Nothing herein shall abrogate the limitations on the size of vehicles operated within the central traffic district or on certain streets as provided in Section 12.40.030. (Prior code § 20-133)

12.40.050 Large vehicles—Maximum width and height.

A. No person shall operate any motor vehicle, truck-tractor, trailer or semitrailer on any street or alley within the city if the width or height exceeds eight feet wide, thirteen feet six inches high as provided for by state law and with the exceptions therein.

B. Nothing herein shall abrogate the limitation on the size of vehicles operated within the central traffic district or on certain streets as provided in Section 12.40.030. (Prior code § 20-134)

12.40.060 Large vehicles—Maximum weight.

A. No person shall operate any motor vehicle, truck-tractor, trailer or semitrailer on any street or alley within the city if the weight thereof exceeds the maximum weight established by state law.

B. Nothing herein shall abrogate the limitations on the size of vehicles operated within the central traffic district or on certain streets as provided in Section 12.40.030.

C. The police department shall have the authority to weigh trucks which are traveling within the confines of the city which may exceed the legal load limit established by state law for roads and bridges. (Prior code § 20-134.1)

12.40.070 Maximum vehicle weights allowed on certain bridges and streets.

No person shall drive any vehicle on that part of the following described bridges or streets if such vehicle, with its load and any trailer or attachment, has a gross weight in excess of the amounts hereinafter set forth:

A. The bridge immediately south of the Southern Pacific Railroad bridge across the Rio Grande, extending from Paisano Drive, across the river, to the property of the El Paso Brick Company and McNutt Road in New Mexico, with a load limit of eighteen thousand pounds gross vehicle weight;

B. Courchesne Bridge across the Rio Grande with a load limit of twenty-one thousand pounds tandem axle weight;

C. Borderland Bridge across the Rio Grande with a load limit of seventeen thousand pounds tandem axle weight;

D. Country Club Road (FM 260) between Doniphan Drive and the city limits with a roadway load limit of fifty-eight thousand four hundred twenty pounds gross vehicle weight;

E. Westside Drive (FM 260) between Country Club Road and the city limits with a roadway load of fifty-eight thousand four hundred twenty pounds gross vehicle weight;

F. Gibson Veck Road between Frontera Road and the city limits with a roadway load limit of seven thousand pounds gross vehicle weight;

G. First Avenue bridge over the Franklin Canal between Coles Street and Cypress Street with a load limit of twelve thousand five hundred pounds gross vehicle weight. (Ord. 15696 § 1, 2004; Ord. 11758 §§ 1, 2, 1994: prior code § 20-135)

12.40.080 Large vehicles—Permit—Considerations in refusing permit.

Whenever in the traffic ordinances a permit from the chief of police is required for the operation of a vehicle on any street or alley or in any district, such permit shall be given or refused by the chief of police according to whether he considers such operation will be reasonably consistent with the public safety, considering the following: the size, nature and condition of the vehicle, the length of the route, the amount and character of traffic to be expected upon the route on the date and during the hours when the vehicle is to be operated on the route, the necessity for such operation, and any other factor reasonably bearing on the safety of the operation. (Prior code § 20-131)

12.40.090 Vehicles restricted to truck routes—Exceptions.

A. Vehicles whose origin or destination lies outside the city limits, which dimensions exceed those stated in Section 12.40.030 B., shall use the streets and parts of streets listed in Schedule VIII, Section 12.88.080 and no others.

B. Any operator of such vehicle may deviate from such truck routes as provided in subsection (A) of this section provided that he or she utilizes the most direct route to and from the truck routes, and does so for the purpose of making a pick-up and/or delivery in the course of business. Any operator found deviating from the truck routes as provided for herein is presumed to not be in compliance with the truck route ordinance. The presumption is rebuttable and proof of compliance is a defense to a citation under this code section.

C. Provided further that this section shall not apply to vehicles of a political subdivision of the state performing a function of their entity.

D. Any operator of a vehicle whose dimensions exceed those stated in Section 12.40.030(B) who is required by Texas state law to take a test conducted by the Department of Public Safety, may deviate from the truck routes as provided in subsections A and B of this section for the purpose of traveling to and from a Texas Department of Public Safety testing office and for the purpose of taking a driving test conducted by a Texas Department of Public Safety officer. No vehicle exempt under this section shall transport any hazardous materials or flammable liquids while deviating from truck routes.

E. 1. Vehicles with or without trailers exceeding twenty-six feet in length, eight feet in width or thirteen feet six inches in height shall not be operated on Country Club Drive within the city limits of El Paso, Texas.

2. No such vehicle shall be operated on the road heretofore a section of State Farm-to-Market Road 260 from State Highway 20 to its intersection of State Highway 178 (Artcraft Road) at Farm-to-Market Road 260, a distance of approximately 4.5 miles.

3. The prohibition of this subsection shall not apply to city, county, state or federal governmental vehicles or any vehicle of a political subdi-

vision of the state. (Ord. 13739 § 1, 1998; Ord. 13561 § 2, 1998; Ord. 10103 § 1, 1990; prior code § 20-136)
(Ord. No. 17364, § 2, 7-27-2010)

12.40.100 Vehicles transporting hazardous materials—Restriction to certain routes.

Vehicles, with or without trailers, transporting hazardous materials, as defined in 49 C.F.R. Section 171.8, or any amendments thereto, shall be operated upon those streets and parts of streets listed in Schedule IX, Section 12.88.110. (Ord. 11701 § 1, 1993)

12.40.110 Vehicles transporting hazardous materials—Authority to leave special truck routes.

Vehicles, with or without trailers, carrying hazardous materials, as defined in Section 12.40.100, may leave the routes defined in Section IX, Section 12.88.110, only by the shortest route to pick up and deliver any hazardous material. Vehicles carrying flammable liquids that are hazardous materials, as defined in Section 12.40.100, that leave the routes to deliver to any retail or bulk oil station any flammable liquid, other than petroleum gases, shall be equipped with inside valves as described in provisions of this code regulating the installation and operation of refineries and wholesale or bulk oil stations handling flammable liquids and the construction and operation of tank trucks handling such flammable liquids within the limits of the city, and provided further, such vehicle shall meet any requirement set forth in this title or any other ordinance regulating or pertaining to the transportation of flammable liquids, unless inconsistent with the provisions of federal or state law. (Ord. 11701 § 2, 1993)

12.40.120 Vehicles transporting flammable liquids—Inside valves and safety devices required.

No vehicle, with or without trailer, shall be permitted to unload flammable liquids in classes 1, 2 or 3 as provided in the provisions referred to in Section 12.40.100 hereof within the limits of the city unless such vehicle and/or trailer is equipped with inside valves and other safety devices as required in any ordinance of this city. (Prior code § 20-139)

12.40.130 Vehicles operated with unsecured loads.

No person shall operate, or cause to be operated, on any public street or public alley, any vehicle loaded in such a manner with any article or articles, that when said vehicle is in motion, any article or articles are likely to fall upon any public street or public alley. (Ord. 9168, 1987: prior code § 20-140)

12.40.140 Vehicles laden with sand—Restricted to use of certain streets—Exception.

A. All vehicles with or without trailers, exceeding a total gross weight of twenty thousand pounds and which transport sand, gravel, rock, earth, quarried materials or other particles in bulk shall use the streets and parts of streets listed in Schedule VIII, Section 12.88.080, and no others; provided, however, they may leave such routes only by the nearest route to make pickups or deliveries from the above described vehicles, and shall return to such prescribed route by the shortest route possible.

B. Verification of pickups or deliveries shall be made by the vehicle operator, upon the request of any law enforcement officer for the city by presenting for inspection to the officer, a shipping order, bill of lading, contract or other instrument specifying the date, address and name of the company or individual requesting or directing the pickup or delivery.

C. For the purpose of this section the gross vehicle weight may be determined by the law enforcement officer from a visual inspection of the vehicle registration receipt which is required by Article 6701d-11, Section 5(a), Vernon's Annotated Texas Statutes, to be carried at all times on

any such vehicle. (Prior code § 20-140.1)

12.40.150 Vehicles laden with sand—Removal of spilled materials.

Every person operating any vehicle from which any particles or materials described in Section 12.40.130 having knowledge or notice that such particles or materials have fallen or are thrown upon any paved public street or paved public alley, shall immediately remove, or cause to be removed, such particles or material from the street or alley. (Prior code § 20-141)

Chapter 12.42

RESTRICTIONS FOR TRUCKS UPON A PORTION OF INTERSTATE HIGHWAY 10

Sections:

12.42.010 Definitions.

12.42.020 Restrictions.

12.42.030 Enforcement.

12.42.010 Definitions.

"Authorized lane" means the lanes to the right of the left most lane.

"Designated portion of affected highway" means that part of Interstate Highway 10 from 0.2 miles east of the apex of the State Highway 20 (Mesa Street) overpass structure on the west to a point 0.7 miles west of the apex of the Farm-to-Market Highway 659 (Zaragoza Road) overpass structure on the east for eastbound vehicles and 0.3 miles west of the apex of the Farm-to-Market Highway 659 (Zaragoza Road) overpass structure on the east to point 0.2 miles east of the apex of the State Highway 20 (Mesa Street) overpass structure on the west for westbound vehicles.

"Truck" means a "truck" as defined in Section 541.201 of the Texas Transportation Code that has three or more axels or a "truck tractor" as defined by Section 541.201 of the Texas Transportation Code, regardless of whether the truck tractor is drawing another vehicle or trailer.
(Ord. 17156, § 1, 8-4-2009)

12.42.020 Restrictions.

Any person driving or operating a truck on the designated portion of affected highway shall not utilize any control access lane other than the authorized lanes, except that a restricted vehicle may use any lane of the highway to pass another vehicle and to enter and exit the highway.
(Ord. 17156, § 1, 8-4-2009)

12.42.030 Enforcement.

A. Enforcement of this ordinance will commence upon the placement of the appropriate traffic control devices as specified under Texas Transportation Code Section 545.0651.

B. A violation of this provision is a misdemeanor and shall be punished by a fine not exceeding five hundred dollars.

C. This restriction may be suspended by the Texas Department of Transportation Executive Director or his designee, for any reasons stated under Texas Transportation Code Section 545.0651(f).
(Ord. 17156, § 1, 8-4-2009)

Chapter 12.44

STOPPING, STANDING AND PARKING GENERALLY

Sections:

12.44.010 Where signs required.

12.44.020 Where no signs required.

12.44.030 Proximity to curb.

12.44.040 Angle parking—Placing signs and markings.

12.44.050 Angle parking—Offset parking.

12.44.060 Angle parking—Obedience to signs and markings.

12.44.070 Back-in angled parking only zone.

12.44.080 Traffic obstruction prohibited.

12.44.090 Parking prohibited for certain purposes.

12.44.100 Parking prohibited for certain vehicles.

12.44.110 Parking adjacent to schools—Sign erection—Authority to have vehicles towed.

12.44.120 Parking adjacent to schools—Sign erection authority.

12.44.130 Parking on narrow streets.

12.44.140 Parking on one-way streets.

12.44.150 Standing or parking on one-way roadways.

12.44.160 Parking in alleys.

12.44.170 Parking on city-owned property.

12.44.180 Regulations pertaining to certain special situations.

12.44.190 Off-street parking requirements for foreign consulates and appurtenant exhibition halls.

12.44.200 Disabled parking on private property.

12.44.210 Hazardous or congested places.

12.44.220 Street cleaning or construction—Sign placement.

12.44.230 Pickup and discharge of agricultural workers.

12.44.240 Temporary no parking zones.

12.44.250 Sign erection required—Violation.

12.44.260 Stealing space.

12.44.270 Moving another's vehicle into or out of spaces.

12.44.280 Restrictions on parking in residential parking districts.

12.44.290 Restrictions on parking in downtown parking districts.

12.44.300 Educational parking districts.

12.44.010 Where signs required.

No person shall stop, stand or park a vehicle, except when necessary to avoid conflict with other traffic, or in compliance with law or the directions of a police officer or traffic-control device, in any of the following places when signs are erected giving notice thereof:

A. Within thirty feet upon the approach to any flashing beacon or traffic-control signal locate at the side of a roadway.

B. Between a safety zone and the adjacent curb or within thirty feet of points on the curb immediately opposite the ends of a safety zone, unless the traffic engineer has indicated a different length by signs or markings;

C. Within fifty feet of the nearest rail of a railroad crossing;

D. Within twenty feet of the driveway entrance to any fire station and on the side of a street opposite the entrance to any fire station within seventy-five feet of such entrance;

E. In alleys designated by the traffic engineer as waste collection locations under Title 9.04.100 on designated days and times. (Ord. 12391, 1995; prior code § 20-76)

(Ord. No. 17690, § 5, 12-6-2011; Ord. No. 17813, § 1, 6-5-2012; Ord. No. 019666, § 1, 8-27-2024)

12.44.020 Where no signs required.

No person shall stop, stand, or park a vehicle, except when necessary to avoid conflict with other

traffic or in compliance with law or the directions of a police officer or traffic-control device, in any of the following places:

A. On a sidewalk;

B. In front of a public or private driveway;

C. Within an intersection;

D. Within fifteen feet of a fire hydrant;

E. Within twenty feet of a crosswalk;

F. Alongside or opposite any street excavation or obstruction when stopping, standing or parking would obstruct traffic;

G. On the roadway side of any vehicle stopped or parked at the edge or curb of a street;

H. Upon any bridge or other elevated structure upon a highway or within a highway tunnel;

I. At any place where official signs prohibit stopping. Provided, however, that the driver of a vehicle may stop temporarily at such place for a period not exceeding five minutes for the purpose of assisting in the loading or unloading of disabled persons as defined by state law;

J. On a median strip;

K. On the area between the curb line, or the lateral lines of the roadway, and the adjacent property line;

L. On city-owned property that is not held open or provided for vehicular traffic or public parking;

M. Adjacent to a curb that has yellow curb markings. For the purposes of this section, a presumption shall exist that yellow markings have been placed on a curb pursuant to appropriate authorization. Any person charged with an offense under this subsection shall be entitled, at a hearing in accordance with Chapter 12.85 of this title, to assert as an affirmative defense that the yellow curb markings were not duly authorized.

It shall be an offense for any person to create yellow curb markings without the appropriate authorization granted in accordance with the provisions of this code.

N. Designated bike lanes, unless official signs allow such parking during specific times.

O. Within thirty feet upon the approach to a stop sign. (Ord. 11486 § 1, 1993; Ord. 10964 § 2, 1992; prior code § 20-75)
(Ord. No. 17366, § 1, 7-27-2010; Ord. No. 17813, § 2, 6-5-2012)

12.44.030 Proximity to curb.

No person shall stand or park a vehicle in a roadway other than parallel with the edge of the roadway headed in the direction of lawful traffic movement and with the right-hand wheels of the vehicle within eighteen inches of the curb or edge of the roadway, except that motorcycles shall be parked with at least one wheel or fender touching the right-hand curb; provided, on one-way streets (if parking or standing on the left side of street is not otherwise prohibited) vehicles standing or parked on the left side of the street shall have their left-hand wheels within eighteen inches of the curb or edge of the roadway, except that motorcycles shall be parked with at least one wheel or fender touching the left-hand curb, and provided further, these requirements for parallel parking shall not apply to a location at which angle or offset parking or standing is permitted under this title. (Prior code § 20-68)
(Ord. 17037, § 1, 12-9-2008)

12.44.040 Angle parking—Placing signs and markings.

A. The traffic engineer shall determine upon what streets angle parking shall be permitted and shall mark or sign such streets, but such angle parking shall not be indicated upon any federal-aid or state highway within this city unless the state highway commission has determined by resolution or order entered in its minutes that the roadway is of sufficient width to permit angle parking without interfering with the free movement of traffic.

B. Angle parking shall not be indicated or permitted at any place where passing traffic would thereby be caused or required to drive upon the left side of the street or upon any streetcar tracks. (Prior code § 20-69)

12.44.050 Angle parking—Offset parking.

A. That the city council may determine by resolution what streets may be designated by curb setbacks within the right-of-way to accommodate angled parking; provided however, that no such curb setbacks shall be provided within the right-of-way of any street which carries more than four thousand vehicles per average day, nor upon any street which carries more than five hundred vehicles per hour for any consecutive three hours of an average day.

B. When such curb setbacks are permitted, adequate provision shall be made for the free and unobstructed passage of pedestrian traffic. (Prior code § 20-70)
(Ord. No. 17549, § 1, 5-3-2011)

12.44.060 Angle parking—Obedience to signs and markings.

Upon those streets which have been signed or marked by the traffic engineer for angle parking, it shall be a violation for a person to stop, park or stand a vehicle other than at the angle to the curb or edge of the roadway indicated by such signs or markings. (Prior code § 20-71)
(Ord. No. 17690, § 6, 12-6-2011)

12.44.070 Back-in angled parking only zone.

An operator who stops or parks in a back-in angled parking only space must stop or park the vehicle with the rear wheels of the vehicle at an angle to the curb or edge of the roadway. No portion of the vehicle shall extend into the roadway so as to obstruct traffic flow.
(Ord. No. 17812, § 1, 6-5-2012)

12.44.080 Traffic obstruction prohibited.

A. No person shall park any vehicle upon any street or alley in such a manner or under such conditions as to leave available less than ten feet of the width of the roadway for free movement of vehicular traffic, and no person shall stop, stand or park a vehicle within any street or alley in such position as to block the driveway entrance to any abutting property.

B. No person shall park a vehicle in any alley within the central traffic district or within the five points traffic district except temporarily for the purpose of loading or unloading goods or merchandise.

C. The traffic engineer is authorized to erect signs indicating no parking within any alley when such parking would create a hazard or obstruction to traffic.

D. The traffic engineer is authorized to erect signs indicating no parking within any alley when such parking would impede the movement of a waste collection vehicle on collection days or certain times. (Prior code § 20-73)
(Ord. No. 019666, § 2, 8-27-2024)

12.44.090 Parking prohibited for certain purposes.

No person shall park a vehicle upon any public right-of-way as defined in Section 19.50.030 of this Code, for the purpose of washing, greasing or repairing such vehicle except repairs necessitated by an emergency. (Ord. 14845 § 1, 2001: Prior code § 20-80)
(Ord. No. 17690, § 8, 12-6-2011)

12.44.100 Parking prohibited for certain vehicles.

A. No vehicle with or without trailers, and no trailers, exceeding nine feet in height, twenty-six feet in length or seven feet, eight inches in width, shall be parked for any period of time on any public street, alley, sidewalk, median, or any area between the curb line or the lateral lines of any roadway and the adjacent property line; except that said vehicles may be parked for a period not exceeding two hours, whether consecutive or not, during any eight-hour period for the purpose of loading or unloading goods or merchandise. This subsection does not apply to the area described in subsection B below.

B. No vehicle with or without trailers, and no trailers, exceeding nine feet in height, twenty-six feet in length or seven feet, eight inches in width, shall be parked for any period of time on any

public street, alley, sidewalk, median, or any area between the curb line or the lateral lines of any roadway and the adjacent property line, within the confines of Cotton St. to the west; Paisano St. to the south; Texas Ave. to the north; and Piedras St. to the east. (Ord. 16890 § 1, 2008: Ord. 14634 § 1, 2000: Ord. 13827 § 1, 1998; Ord. 12390, 1995: Ord. 12288 (Exh. A), 1995: prior code § 20-80.1)

12.44.110 Parking adjacent to schools—Sign erection—Authority to have vehicles towed.

A. The traffic engineer is hereby authorized to erect signs reading "No Parking or Standing, Tow-Away Zone" upon either side or both sides of any street abutting school property when such parking or standing would interfere with traffic or create a hazardous situation.

B. The police department is authorized to cause to be towed away any vehicle found parked or standing in violation of subsection A of this section; and the owner of such vehicle shall be civilly liable to the person doing such towing for the reasonable cost thereof. (Prior code § 20-81)

12.44.120 Parking adjacent to schools—Sign erection authority.

The traffic engineer is authorized to erect signs indicating no parking upon either side or both sides of any street abutting school property when such parking would interfere with traffic or create a hazardous situation. (Prior code § 20-81.1)

12.44.130 Parking on narrow streets.

The traffic engineer is authorized to erect signs indicating no parking upon any street when the width of the roadway does not exceed twenty feet, or upon one side of a street as indicated by such signs when the width of the roadway does not exceed thirty feet. (Prior code § 20-82)

12.44.140 Parking on one-way streets.

The traffic engineer is authorized to erect signs upon the left-hand side of any one-way street to prohibit the standing or parking of vehicles. (Prior code § 20-83)

12.44.150 Standing or parking on one-way roadways.

In the event a highway includes two or more separate roadways and traffic is restricted to one direction upon any such roadway, no person shall stand or park a vehicle upon the left-hand side of such one-way roadway unless signs are erected to permit such standing or parking. The traffic engineer is authorized to determine when standing or parking may be permitted upon the left-hand side of any such one-way roadway and to erect signs giving notice thereof. (Prior code § 20-84)

12.44.160 Parking in alleys.

A. Parking in alleys shall be governed by the following parking regulations:

1. One side of the alley may be designated "no stopping or standing, tow-away zone" by the traffic engineer. No person shall park, stop or stand any vehicle on this side of the alley when signs have been erected in the locations reading substantially "No Stopping or Standing, Tow-Away Zone." The police department is directed to cause to be towed away any vehicle found parked, stopped or standing in violation of this section. The owner of such vehicle shall be civilly liable to the person doing such towing for the reasonable cost thereof.

2. The opposite side of the alley may restrict parking to commercial vehicles or other vehicles actively engaged in the process of loading or unloading. Those alleys with signs erected reading substantially "No Parking, Loading Zone Commercial Vehicles Only" shall be restricted to parking by commercial vehicles only. Those alleys with signs erected reading substantially "No Parking Except For Loading" shall be restricted to commercial vehicles and other vehicles actively engaged in the process of loading or unloading.

B. The traffic engineer shall have the authority to designate which side of the alley shall be

used as a commercial loading zone and which side of the alley parking, stopping and standing will be prohibited.

C. The traffic engineer shall have the authority to designate which alleys shall be used as locations for solid waste collection pursuant to Section 9.04.100.

D. To the extent that the language in this chapter conflicts with the that of Chapter 9.04, the latter shall prevail. (Prior code § 20-195)
(Ord. No. 17078, § 1, 3-3-2009; Ord. No. 17690, § 10, 12-6-2011; Ord. No. 019666, § 3, 8-27-2024)

12.44.170 Parking on city-owned property.

A. Authority of the traffic engineer. The traffic engineer is authorized and directed, subject to approval of the city council, to establish loading zones, parking time limit zones, no parking zones, reserved parking zones, parking meter zones and such other parking regulations as may be necessary to properly control and regulate the parking of vehicles on city-owned properties outside the right-of-way of any dedicated public street which is intended for parking.

B. Based on studies. The traffic engineer shall establish such parking zones or other parking regulations on the basis of traffic and engineering studies determining the needs of the city with respect to the land, the public convenience and necessity, and public safety.

C. Placing signs and markings. The director of the department of transportation is authorized to place and maintain signs and markings as may be necessary to adequately inform the public of such regulations.

D. It shall be a violation for any person to park on city owned property contrary to the signs or markings placed by authority of this section.

E. A vehicle, which displays license plates issued under the applicable Texas Transportation Code sections noted below, is exempt from the payment of a parking fee at any city facility where a parking fee is collected, provided that the vehicle is being operated at the time of accrual of such parking fee by or for the transportation of the person that registered the vehicle under such Texas Transportation Code provisions:

1. Section 504.202—Veterans with Disabilities;

2. Section 504.315(c)—Former Prisoners of War;

3. Section 504.315(d)—Pearl Harbor Survivors;

4. Section 504.315(e)—Congressional Medal of Honor recipients; and

5. Section 504.315(g)—Purple Heart recipients.

This section does not permit a vehicle to be parked at a time when or a place where parking is prohibited.

F. A vehicle, which displays license plates issued under the applicable Texas Transportation Code section noted below, is exempt from the payment of a parking fee at the El Paso International Airport, provided that the vehicle is being operated at the time of accrual of such parking fee by or for the transportation of the person that registered the vehicle under such Texas Transportation Code provisions:

1. Section 504.317—Surviving Spouse of Disabled Veterans.

This section does not permit a vehicle to be parked at a time when or a place where parking is prohibited. (Ord. 16373 § 1, 2006; Ord. 14421, 2000; Ord. 13152 § 101, 1997; Ord. 13076 § 1, 1997; Ord. 13062 § 5, 1997; Ord. 11546, 1193; Ord. 10964 § 3, 1992; Ord. 10046 § 1, 1990: prior code § 20-99)
(Ord. No. 17394, § 8, 8-24-2010, eff. 9-1-2010; Ord. No. 17690, § 10, 12-6-2011; Ord. No. 18859, § 1, 10-16-2018)

12.44.180 Regulations pertaining to certain special situations.

A. The traffic engineer is authorized to designate zones in which stopping, standing and parking shall be regulated or prohibited as herein set forth, and violations of the regulations established as provided in this section shall constitute a civil

offense as provided in Section 12.84.010 A. Notice of such zones shall be given by signs or by marking on the street, stating the type of zone, and when notice is so given no person shall stop, stand or park in such zone in violation of the applicable regulations. In designating any such zone the traffic engineer shall base his determination upon such of these factors, guides or standards as are applicable: the safety of persons and vehicles, the prompt movement of traffic, the convenience of the public, and the need for the zone at the particular location.

B. The regulations applicable to each such zone are as follows:

1. Passenger loading zone: Vehicle may stop for not more than three minutes and only for the purpose of picking up or discharging passengers; and the driver must remain with the vehicle the entire time;

2. Funeral zone: Must be adjacent to a mortuary, funeral home, or church. Vehicles of the mortuary or funeral home, while used in its business, may use the zone at any time; other vehicles may not park or stand in the zone except when part of a funeral procession;

3. Ballpark zone: Upon approval by the city manager, no more than fifty angled parking spaces on the south side of Franklin Avenue between Durango Street and Interstate 10 East exit ramp to the west, shall be set aside for use by the ballpark tenant. When a sign is erected at such locations reading substantially, "No Parking or Standing Anytime, Reserved for Permit Holder-Tow-Away Zone", no vehicle shall stand or park in these spaces except vehicles with a permit issued by the ballpark tenant. The police department is directed to cause to be towed away any vehicle found parked or standing in violation of this subsection, and the owner of such vehicle shall be civilly liable to the person doing such towing for the reasonable cost thereof. On days when there are no ballpark events, the ballpark tenant shall make thirty spaces available for use by the general public by covering said signs.

4. Police zone: Parking, standing and stopping prohibited, except vehicles (whether marked or unmarked) of the police department, the sheriff's office, and other law enforcement agencies having authority to make arrests;

5. Airport limousine zone: Parking and standing prohibited, except vehicles carrying passengers to or from the El Paso International Airport, and operating under a concession from the city;

6. Inspection zone: Parking and standing prohibited, except vehicles undergoing inspection by the police department in connection with license plates or certificates of title;

7. Police motorcycle zone: Parking and standing prohibited, except motorcycles of the police department;

8. Reserved for mayor and aldermen: A total of seven parking spaces as near as practicable to the mayor's office for the use of the mayor and aldermen. When a sign is erected at such location reading substantially "No Parking or Standing, Reserved for Mayor and Aldermen, Tow-Away Zone," no vehicle shall stand or park in these spaces except the automobiles of the mayor and aldermen. The police department is directed to cause to be towed away any vehicle found parked or standing in violation of this subsection, and the owner of such vehicle shall be civilly liable to the person doing such towing for the reasonable cost thereof;

9. Reserved for Mexican Consul and consular employees: Twenty-five parking spaces, convenient to the Mexican Consulate. No vehicles shall be parked in these spaces except the official car of the Consul General of Mexico and the cars of employees of the Mexican Consulate designated by the consul;

10. News media zone:

a. Parking and standing prohibited, except vehicles in official use by news media representatives of newspapers, magazines, online news publications, or radio and television stations. Parking in the news media zones shall be on a first come first served basis. No vehicle shall be parked in the news media zones (which may be together or at

different locations) except vehicles identified by a metal news media plate placed inside the vehicle on the driver's side of the dashboard so as to be visible at all times. The news media plate shall only be used by a news media representative in connection with his or her official duties,

b. The news media plate shall be issued by the city communications and public affairs manager. Upon verification of credentials by the city communications and public affairs manager and payment of the established fee by applicant, the city communications and public affairs manager shall issue the news media plates. Applicants shall be required to pay the established fee for replacement of the news media plate for any lost or stolen plates. The city communications and public affairs manager may revoke a news media plate and require such plate to be returned to him or her when such plate has been used in violation of the terms of section 12.44.180(B)(10)(a). The media outlet may challenge the city communications and public affairs manager's decision to the city manager,

c. Effective January 1, 2015, all news media plates will expire on January 1 of the year after their issuance. News media plates issued prior to January 1, 2015, will expire on February 1, 2015;

11. Reserved for the temporarily and permanently disabled:

a. Parking, stopping or standing is prohibited and constitutes a violation except for vehicles displaying special license plates issued under Section 504.201, Texas Transportation Code or a disabled parking placard issued under Section 681.002, Texas Transportation Code, or is compliance with the requirements under Section 681.007, Texas Transportation Code,

b. Parking, stopping or standing is prohibited and constitutes a violation if the vehicle blocks an architectural improvement designed to aid persons with disabilities, including an access aisle or curb ramp.

c. A parking space shall be considered to be "reserved for the temporarily and permanently disabled" if it conforms to the rules promulgated by the statutorily-designated agency of the State of Texas pursuant to statutory authority, relating to the identification and dimensions of parking spaces for persons with disabilities,

d. A parking space reserved for the temporarily and permanently disabled shall be identified and reserved for the disabled by a sign incorporating the symbol of accessibility and placed so that it will not be obscured by parked vehicles. The signage shall be of such size that it is legible from a distance that would be reasonable for the condition. Where conditions exist that preclude the use of vertical signage, suitable phrases or symbols sufficient in size, permanency, meaning and location so as to adequately serve the intent of this subparagraph may be accepted,

e. Nothing herein shall be construed to affect any ordinance or regulation governing hours of parking, length of time vehicles are permitted to park, or parking meter requirements;

12. Reserved for U.S. Marshal's Service: All parking spaces on the west side of Ochoa Street between Myrtle Avenue and Magoffin Avenue. No vehicle shall be parked in these spaces except vehicles of the U.S. Marshal's Service.

13. Reserved for emergency medical vehicles: Six spaces on Florence Street between First Street and Overland Avenue. No vehicle shall be parked in these spaces except for emergency medical vehicles;

14. Reserved for U.S. Immigration Service: One parking space as near as practicable to the Myrtle Street entrance to the U.S. Federal Courthouse. No vehicle shall be parked in this space, except vehicles of the U.S. Immigration Service.

15.—17. Reserved.

18. Reserved for Emergency Medical Services vehicles: Two spaces on the west side of the 200 block of South Campbell Street. No vehicles shall park in these spaces except Emergency Medical Services vehicles;

19., 20. Reserved.

21. Reserved for law enforcement vehicles loading and unloading prisoners only:

a. All spaces on the east side of Campbell Street between Overland Avenue and San Antonio Avenue,

b. All spaces on the west side of Florence Street between Overland Avenue and San Antonio Avenue,

c. Three spaces within the curb setback on the north side of Overland between Campbell and Florence,

No vehicle shall be parked in these spaces except for law enforcement vehicles loading and unloading prisoners at the El Paso County downtown detention facility;

22. Reserved for city police department, officially marked vehicles:

a. 100 block of South Campbell Street, west side, four spaces;

b. Kansas Street between San Antonio Avenue and Overland Avenue, west side all spaces;

c. Overland Avenue, from Kansas Street to a point approximately 80 feet east, nor side, four spaces;

d. Campbell Street, from San Antonio Avenue to a point approximately 100 feet south, Westside, 6 spaces; and

e. San Antonio Avenue, between Campbell Street and Florence Street, south side, eight spaces.

23. Reserved.

24. Reserved for Border Patrol prisoner unloading: Two spaces on the north side of the 500 block of East San Antonio Avenue. No vehicles shall park in these spaces except Border Patrol vehicles while loading and unloading prisoners.

25.—27. Reserved.

28. a. No parking at any time, fire lane (tow away) on access roadways as described under Chapter 19.16, Improvement Standards and Design Principles,

b. No parking at any time, fire lane (tow away) at designated zones prohibiting parking. Notice of such zones shall be given by signs stating "No Parking At Any Time, Fire Lane,"

c. Parking, stopping and standing is prohibited in any parking meter space where the meter has been covered with a red, orange or yellow parking meter cover by an agent or employee of the city, except that:

i. In a meter space where the meter is covered by a red or orange cover, vehicles authorized by the department of transportation will be allowed to park and such authorization will be evidenced by a written document displayed in the window of the vehicle.

ii. In a meter space where the meter is covered with a yellow cover, vehicles belonging to election judges will be allowed to park. Evidence of same to be a written document displayed in the window of the vehicle.

iii. Fees for renting parking meters: When permitted, the established fees for renting parking meters shall be paid for renting parking meters. The fee for renting parking meters is not applicable to those permits for which the City of El Paso, or Destination El Paso, in connection with a City activity or event, applies for said permit.

29., 30. Reserved.

31. Reserved for Library Vehicles Only.

a. Three spaces within the curb setback on the west side of Oregon Street, between Franklin Avenue and Missouri Avenue; and

b. Two spaces on the north side of Franklin Avenue between Oregon Street and El Paso Street.

No vehicle shall be parked in these spaces except for library vehicles.

32. Reserved for Federal Law Enforcement Vehicles only:

a. All spaces on the south side of Myrtle Avenue from Kansas Street to Campbell Street.

b. All spaces on the north side of East San Antonio Avenue from Kansas Street to Campbell Street.

c. All spaces on the east side of Florence Street from East San Antonio Avenue to East Overland Avenue.

d. All spaces on the south side of East San Antonio Avenue from Florence Street to Ochoa Street.

No vehicle shall be parked in these spaces, except Federal Law Enforcement vehicles.

33. Reserved for Consul General of El Salvador visitors:

a. Two parking spaces on the West side of 298 Leon St., convenient to the Consulate of El Salvador.

No vehicles shall be parked in these spaces except the official vehicles of the Consul General of El Salvador and the vehicles of visitors designated by the consul. (Ord. 16741 § 1, 2007; Ord. 16592 § 1, 2007; Ord. 16481 § 1, 2006; Ord. 16201, 2005; Ord. 15653, 2004; Ord. 15353 §§ 1, 2, 2003; Ord. 15230 § 1, 2002; Ord. 15143 §§ 1, 2, 2002; Ord. 15039 § 1, 2002; Ord. 14955 § 1, 2001; Ord. 14478 § 1, 2000; Ord. 14297 § 1, 1999; Ord. 13540, 1998; Ord. 13278 § 1, 1997; Ord. 13098 § 1, 1997; Ord. 13062 § 6, 1997; Ord. 12464, 1995; Ord. 10468 § 1, 1991; Ord. 10042 § 1, 1990; Ord. 9578 §§ 1, 2, 1989; Ord. 9330 § 1, 1988; Ord. 9220 §§ 1, 2, 3, 1987; Ord. 9111 § 1, 1987; prior code § 20-99.1)
(Ord. No. 17690, § 13, 12-6-2011; Ord. No. 17734, §§ 1—3, 2-21-2012; Ord. No. 17814, §§ 1—3, 6-5-2012; Ord. No. 17946, § 1, 2-5-2013; Ord. No. 17957, § 1, 2-19-2013; Ord. No. 18161, § 1, 4-15-2014; Ord. No. 18226, § 1, 8-19-2014; Ord. No. 18410, § 1, 9-8-2015; Ord. No. 019602, § 1, 3-12-2024)

12.44.190 Off-street parking requirements for foreign consulates and appurtenant exhibition halls.

A. Notwithstanding the provisions of any city code or ordinance to the contrary, the minimum number of required off-street parking spaces for the consulate of any foreign government, and for any appurtenant exhibition halls, shall be computed and provided in accordance with the following requirements:

1. Parking spaces for the use of customers, patrons and visitors: One off-street parking space for each one hundred fifty square feet of net floor area used or intended to be used for service to the public as customers, patrons and clients.

2. Parking spaces for the use of employees and occupants: One off-street parking space for each five hundred square feet of net floor area.

B. The term "off-street parking space" as used in this section shall include any on-street spaces designated for exclusive use by the consulate under Section 12.44.180, and any such spaces shall be included in determining the minimum number of parking spaces required under this section.

C. When written assurance is provided to the traffic engineer or his designee by the consul of a foreign government that the consulate and any appurtenant exhibition halls will not be in operation at the same time, the required number of off-street parking spaces shall be determined as follows: The traffic engineer or his designee shall compute the number of spaces required for the use of customers, patrons and visitors under subsection (A)(1) of this section, and shall also compute the number of spaces required for the use of employees and occupants under subsection (A)(2) of this section, and whichever of the two numbers is greater shall be the required number of spaces. If, however, the consulate and exhibition halls are ever operated at the same time, the off-street parking requirements for customers, patrons and visitors and for employees and occupants must then be satisfied.

D. Except as provided above, off-street parking spaces for consulates and appurtenant exhibition halls shall comply with provisions of the zoning ordinance of the city. (Ord. 16981 § 1, 2008; Ord. 13152 § 102, 1997; prior code § 20-99.02)
(Ord. No. 17394, § 9, 8-24-2010, eff. 9-1-2010)

12.44.200 Disabled parking on private property.

A. No person shall stop, stand, or park a vehicle in a parking space or parking area on private property that has been properly marked, signed, and designated as a parking space for the disabled in compliance with State law, without displaying either a special license plates issued pursuant to Texas Transportation Code Section 504.201, or a disabled parking placard issued pursuant to Texas Transportation Code 681.002,or a license plate or placard issued pursuant to Texas Transportation Code 681.007. Such stopping, standing, or parking is contrary to this section and constitutes a violation.

B. No person shall stop, stand, or park a vehicle so that the vehicle blocks an architectural improvement designed to aid persons with disabilities, including an access aisle or curb ramp. Such stopping, standing, or parking is contrary to this section and constitutes a violation.

C. A parking space reserved for the temporarily and permanently disabled shall be identified and reserved for the handicapped by a sign incorporating the symbol of accessibility and placed so that it will not be obscured by parked vehicles. The signage shall be of such size that it is legible from a distance that would be reasonable for the condition. Where conditions exist that preclude the use of vertical signage, suitable phrases or symbols sufficient in size, permanency, meaning and location so as to adequately serve the intent of this subparagraph may be accepted. (Ord. 9220 §§ 4, 5, 1987; Ord. 8355, 1985: prior code § 20-99.2)
(Ord. No. 17690, § 14, 12-6-2011; Ord. No. 17946, § 2, 2-5-2013)

12.44.210 Hazardous or congested places.

The traffic engineer is authorized to determine and designate by proper signs, places not exceed-

ing one hundred feet in length in which the stopping, standing, or parking of vehicles would create an especially hazardous condition or would cause unusual delay to traffic. (Prior code § 20-78)

12.44.220 Street cleaning or construction—Sign placement.

A. Placing by department of transportation. Before cleaning any street the department of transportation may erect movable signs giving notice that parking on such street or block is prohibited after a stated hour of a designated day of the week.

B. Placing during construction. When any street is being or about to be paved or resurfaced, or when construction work is being or about to be done in the street, and in the opinion of the traffic engineer the parking of vehicles will interfere with traffic or with construction work, or will constitute a hazard, the traffic engineer may erect movable signs prohibiting parking in such street or part thereof, during the work, or after a day or time stated.

C. Obedience to signs. When such signs have been erected no person shall park any vehicle in violation of the prohibition indicated by the sign.

D. Removing vehicle upon demand. If a vehicle was parked before the sign was erected and remains parked after the prohibition indicated by the sign becomes effective, any person having control of such vehicle shall remove it from the prohibited area upon demand of the person in charge of the work to be done on the street, or upon demand of any police officer.

E. Removal of vehicle without demand. If the signs authorized by this section were erected at least twenty-four hours before the prohibition is to become effective, it is a violation for any person in control of a vehicle to allow it to remain parked in violation of the prohibition indicated by the sign, notwithstanding the vehicle was legally parked in the first instance; and in such cases no demand for removal shall be necessary. (Prior code § 20-77)
(Ord. No. 17690, § 15, 12-6-2011)

12.44.230 Pickup and discharge of agricultural workers.

It shall be a violation to park, stop or stand on any street or alley for the purpose of the pickup and discharge of agricultural workers except as provided herein and in compliance with all other applicable laws.

A. Pickup or discharge of agricultural workers shall be accomplished only by persons, firms, organizations or others who are in full compliance with all applicable federal, state and local laws. No pickup or discharge on the public streets in the city, at any place other than the workers' residence, of agricultural workers who have been or are being recruited to be transported to and from work in the fields on a day-to-day basis, whether within or outside the state shall be permitted, except under the following conditions:

1. There shall be no pickup between the hours of 10:00 p.m. and 4:00 a.m. on any night. Vehicles picking up agricultural workers shall not depart the pickup area prior to 4:30 a.m.

2. Pickup shall be made only on Ninth Avenue, Between Oregon and Mesa Streets, El Paso, Texas.

3. The number of passengers carried in a vehicle shall not exceed the seating capacity of the vehicle.

4. Workers being returned to El Paso shall not be discharged from vehicles in which they are transported later than 10:00 p.m. on any day.

5. Returning workers shall not be discharged from vehicles at any location other than on Ninth Avenue between Oregon and Mesa Streets. (Ord. 12322 §§ 1, 2, 1995; Ord. 8180, 1984: prior code § 20-99.3)
(Ord. No. 17690, § 16, 12-6-2011)

12.44.240 Temporary no parking zones.

A. The traffic engineer is authorized to establish temporary no parking zones, not to exceed thirty feet in length, in the vicinity of any place of mechanical traffic counting equipment. Such zones,

when established, shall be marked by appropriate signs mounted on portable bases, and installed within the roadway area.

B. Whenever any such zone has been established as provided in subsection A. of this section, it is a violation for any person to park a vehicle within such zone. (Prior code § 20-85)
(Ord. No. 17690, § 17, 12-6-2011)

12.44.250 Sign creation required—Violation.

A. Whenever by this title or any other ordinance of this city any parking time limits are imposed or parking is prohibited on designated streets or alleys, or the traffic engineer is authorized to create or designate no parking zones or erect signs prohibiting parking, it shall be the duty of the traffic engineer to erect appropriate signs or markings giving notice thereof and no such regulations shall be effective unless said signs or markings are in place at the time of any alleged offense.

B. It shall be a violation for any person to park a vehicle in violation of such no parking zones or parking prohibitions created or designated by the traffic engineer by provided in this title which are signed or marked as may be required by this title. (Prior code § 20-98)
(Ord. No. 17690, § 18, 12-6-2011)

12.44.260 Stealing space.

No person shall drive or attempt to drive a vehicle into a parking space when the driver of another vehicle is backing or attempting to back into such space, or when the other driver has stopped in a position of readiness to back into such space and signifies his intention to do so. (Prior code § 20-74)

12.44.270 Moving another's vehicle into or out of spaces.

No person shall move a vehicle not lawfully under his control into any such prohibited area or away from a curb such distance as is unlawful. (Prior code § 20-79)

12.44.280 Restrictions on parking in residential parking districts.

A. Policy. It is the policy of the city to reduce hazardous traffic conditions and congested parking conditions resulting from the use of streets within areas zoned for residential uses for the parking of vehicles by persons using commercial, industrial, governmental, education, recreational and entertainment facilities to protect the residents of designated residential districts from unreasonable burdens in gaining access to their residences; to preserve the character of designated residential districts as residential districts; to preserve historic districts and allow parking for tenants due to the restrictions placed in historic districts; to promote efficiency in the maintenance of those streets in a clean and safe condition; to preserve the safety of motorists, children and other pedestrians; and to the peace, order, comfort, convenience and welfare of the inhabitants of the city.

B. Definitions. The following definitions shall apply to this section:

"Applicant" means the individuals), entity, organization, group, or designee.

"Block" means a continuous area adjacent to a street between street intersections on one or both sides of such street or, in the instance of a dead-end street, the contiguous area from the last intersection of that street with another street to the end of such street on one or both sides of such street.

"Light density residential district" and/or "medium density residential district" with the exception of "A-O apartment/office district" shall have the same meaning as defined in City Code Section 20.06.010.A. table insert.

"Owner" means an owner of record in the El Paso County clerk's records of a property within a residential parking district.

"Property" means a parcel of land containing at least one residential dwelling unit and has a property or parcel identification number issued by the central appraisal district.

"Resident" means the owner or tenant who occupies a residential property in a "light density

residential district" and/or "medium density residential district" with the exception of "A-O apartment/office district."

"Residential property" means premises containing one or more dwelling units in a light density or medium residential district, such as single-family homes, duplexes, condominiums and apartment complexes with four or fewer units that contain habitable rooms for non transient occupancy and are designed primarily for living, sleeping, cooking and eating therein, unless such premises are actually occupied and used exclusively for other purposes. Apartment complexes with five or more dwelling units that are within a designated historical district shall be considered residential. Dormitories, boardinghouses with five or more units, and hotels, hotel suites, motels, and day care centers shall not be considered residential.

C. Creation of residential parking districts.

1. Creation. Residential parking districts shall be created and dissolved by ordinance. Residential parking districts established in Section 12.88.200 shall continue in existence until removed by amendment to that section.

a. Districts initiated by city council. City representatives may propose to create or dissolve a residential parking district by submitting a proposal to the city traffic engineer. When the proposal is to create a district, the city traffic engineer shall evaluate the need for the district using the criteria set forth in this section, evaluate the appropriate boundaries for such district and submit his findings and recommendations to the city council. The city council by ordinance shall determine whether to create or dissolve residential parking districts.

b. Districts initiated by property owners. To initiate the creation of a residential parking district, one or more property owners shall submit an application to create a residential parking district. No fee shall be charged for the application for the creation of a residential parking district. The application shall identify the block or blocks that are proposed to be in the residential parking district. All applicants shall own property in at least one of the blocks identified in the application. The city traffic engineer shall evaluate the need for residential parking restrictions in the block or blocks identified in the application and the area surrounding such block or blocks, following the criteria set forth in this section. If the criteria are met, the city traffic engineer shall recommend appropriate boundaries for the district. The city traffic engineer shall include in his evaluation the reasons why the block or blocks meet or do not meet the criteria. All applications, evaluations and recommendations of the city traffic engineer shall be submitted to the city council for approval or denial of creating the residential parking district. After a residential parking district is created, owners may petition, as described in this section, for residential parking restrictions in one or more blocks within the district.

2. Criteria. The following conditions shall exist in order to create a residential parking district:

a. Vehicles registered to people who are not residents of the block or blocks that are proposed to be in a residential parking district are parked in such block or blocks, utilizing more than sixty percent of the available curbside parking at the same times and days throughout a week or portion of a week; and

b. Commercial, governmental, industrial or educational facilities exist close enough to the block or blocks in the proposed district that users of nonresidential vehicles parked on the street in the block could readily use such facilities; and

c. That unreasonable burdens exist for the residents of the block or blocks in the proposed district in securing adequate on street parking and gaining access to their places of residence because of street parking of nonresidential vehicles; and

d. An inadequate number of parking spaces exist for residents and nonresidents to park their vehicles in the block or blocks in the proposed district; and

e. There is a need for the residents of the block or blocks in the proposed district to obtain on street parking adjacent to or close by their place of residence; and

f. A safety issue has been identified because of congested street parking block or blocks in the proposed district; and

g. The city traffic engineer determines that a parking permit system would alleviate the lack of parking for residents of the block or blocks in the proposed district.

h. The blocks in the proposed district are zoned as a light or medium density residential district.

3. Application for petition. After a residential parking district is established, owners of property in the district who want residential parking restrictions placed on one or more blocks within the district shall follow the following procedures:

a. Application. One or more owners of property in a block must complete, sign and submit to the city traffic engineer an application for residential parking restrictions in one or more blocks within a residential parking district. The application shall be on a form approved by the city traffic engineer. The applicant shall state the location of the block or blocks that the applicant is requesting to be subject to the residential parking restrictions and the factual information concerning parking conditions in the area identified in the application, including information concerning the conditions described in Section 12.44.280 C.2.b. through f.

b. Application fee. There shall be a nonrefundable application fee in the established amount.

c. Petition requirements. Once a completed application with accompanying application fee has been received by the city traffic engineer, the city traffic engineer will verify the existence of commercial, industrial, governmental or education facilities as described in this section. If the city traffic engineer makes such verification, they shall provide a petition to the applicant, which, when returned must meet the following criteria to be considered valid.

1) The petition must be signed by the owners of seventy-five percent of the property in the block or blocks identified in the petition. If a property has multiple owners, only one of the owners is required to sign the petition.

2) Petitions shall be on a form approved by the city traffic engineer. Petitions shall contain (1) the signature of the owner, (2) the name of the owner in print, (3) the property or properties in the block owned by the owner, (4) the date the petition was issued by the city traffic engineer to the applicant, (5) a precise statement that the purpose of the petition is to request that residential parking restrictions be put in place and (6) a description of the block or blocks in which the restrictions would be placed. The owner's name and property address shall be clearly printed or typed. The city traffic engineer shall not consider illegible addresses or printed names when qualifying the petition.

3) The petition shall be returned to the city traffic engineer within thirty days from the time the city traffic engineer provides the petition to the applicant, as shown by the date on the petition.

4) Upon submission of the completed petition to the city traffic engineer, the applicant shall sign a certificate on a form approved by the city traffic engineer declaring that to the best of his knowledge and belief, each signature was that of an owner of property in the block or blocks proposed for residential parking restrictions.

4. City traffic engineer's evaluation. Upon receipt of a petition meeting the requirements of this section, the city traffic engineer shall evaluate the nature and extent of the problems, if any, caused by nonresidential parking in each block using the criteria set forth in Section 12.44.280 C.2.a. through h. If deemed necessary by the city traffic engineer, more detailed studies shall be conducted including, but not limited to an inventory of legal curbside parking spaces available.

5. Notice. The city traffic engineer shall notify the applicant within thirty days of the day the petition is submitted to the office of the city traffic engineer whether the applicant has met the requirements for the implementation of residential parking restrictions, citing any requirements that have not been met.

6. Designation of date. If the city traffic engineer determines that the requirements of this

section have been met, they shall designate a date on which the parking requirements of the block or blocks begin and notify the applicant.

7. Appeal. When the city traffic engineer does not find that the applicant has met the requirements to impose residential parking restrictions, the city traffic engineer shall send the applicant notice of his decision. The applicant may appeal the decision to the city council by submitting an appeal to the city traffic engineer on a form approved by the city traffic engineer. The appeal must be submitted within fifteen consecutive calendar days after the date of applicant's receipt of the notice of the city traffic engineer's decision. The appeal shall state the basis for the appeal specifying any findings by the city traffic engineer that the appellant asserts are in error.

D. Amendment of parking restriction and boundary.

1. Right to apply. An owner of property in a residential parking district may petition to have the residential parking district restrictions modified. The owner of property within one thousand feet of a residential parking district may petition to amend the boundaries of the residential parking district. All petitions must conform to the requirements of this subsection.

2. Application. A person eligible to apply for an amendment to a residential parking district restriction or boundary modification must pay the fee established by city council in the annual budget process and complete, sign, and submit an application to the city traffic engineer. Application fees are not refundable and no application will be considered without payment of the established fee. The application shall be on a form approved by the city traffic engineer, provided that the form must require at a minimum the following:

a. The application must clearly state that the owners of properties signing the application agree with the modification of the residential parking district.

b. If the application is to amend any restrictions of the residential parking district, then the application must be signed by the owners of at least seventy-five percent of the properties within the residential parking district. If the application is to amend the boundaries of a residential parking district, then the application must be signed by the owners of at least seventy-five percent of the new properties proposed to be included in the residential parking district.

c. Application shall contain (1) the signature of each owner, (2) the name of each owner in print (3) the subject area properties, (4) phone number, and (5) a precise statement that the purpose of the petition is to amend the parking restrictions of an existing residential parking district or amend the boundaries of the district to include a block(s) directly adjacent to the existing residential parking district. The owner's name and property address shall be clearly printed or typed. The city traffic engineer shall not consider properties that are not contiguous to other proposed properties in the district, illegible addresses, and/or printed names without signatures when evaluating the application.

d. Upon submission of the completed application to the city traffic engineer, the applicant shall sign a certificate on a form approved by the city traffic engineer declaring that to the best of the applicant's knowledge and belief, each signature was signed by an owner of property within the district or within the new area proposed to be added to the district.

3. City traffic engineer's evaluation. Within thirty calendar days of receipt of an application and payment of the established fee, the city traffic engineer shall verify that the contents of the application are accurate and complete and notify the applicant of the findings. If the city traffic engineer determines that the application is not accurate or complete, then the city traffic engineer will return the application to the applicant to be completed or corrected. If the application is not corrected within thirty calendar days, then the application will expire and a new application and fee will be required if applicant wishes to continue with the process. If the city traffic engineer determines that the application is accurate and com-

plete, then the city traffic engineer will proceed to evaluate whether a parking restriction modification or boundary is appropriate. In making the determination, the traffic engineer may require studies at the expense of the applicant. The fees for the studies will be as established by city council in the annual budget process. Failure to pay the fees for the studies within thirty calendar days of the traffic engineer informing the applicant of the need for a study will result in the expiration of the application and a new application and fee will be required if applicant wishes to continue with the process. If the city traffic engineer determines that an amendment to the residential parking district restrictions or boundaries is not appropriate, then the city traffic engineer will inform the applicant and no amendment of the residential parking district restrictions or boundaries will be made and the application process will be completed at that point. If the city traffic engineer determines that an amendment to the residential parking district is appropriate, then the city traffic engineer shall designate a date on which the proposed amendment to the residential parking district restrictions or boundaries will be presented to city council for consideration. If the amendment is approved by city council, then the city traffic engineer will designate a date to install the new parking restriction, instruct the appropriate city departments to replace all signage and revoke and replace all previous permits and notify the applicant. If the proposed amendment is denied by city council, then the process will end with city council's denial. All amendment approvals or denials are at city council's discretion.

4. Appeal. The applicant may appeal to city council a determination by the city traffic engineer that an amendment to the residential parking district restrictions or boundaries is not appropriate. An applicant wishing to appeal such decision must submit the request for an appeal to the city traffic engineer on the form approved by the city traffic engineer. The appeal must be submitted within fifteen calendar days after the date of applicant's receipt of the notice of the city traffic engineer's decision. The appeal shall state the basis for the appeal specifying any findings by the city traffic engineer that the appellant asserts are in error. The city council may uphold the decision of the city traffic engineer, remand the matter to the city traffic engineer for further consideration, or allow the amendment of parking restrictions or boundaries within the residential parking district.

5. One-year waiting period to modify or submit new applications. The city traffic engineer will not accept any applications to modify any residential parking district restrictions or boundaries that are submitted within one year of a denial or approval of a previous application to modify the restrictions or boundaries of the same residential parking district. In the instance that an application is barred by a previous denial, the one year waiting period will commence on the date that city council denied an appeal or if no appeal was made, then one year from the date the city traffic engineer determined that an amendment to the restrictions or boundaries is not appropriate. The one year waiting period does not apply if the previous application barring a current application expired or was withdrawn by an applicant prior to a determination by the city traffic engineer regarding the appropriateness of an amendment to the restriction or boundaries of a residential parking district.

6. Health and safety related modifications. Notwithstanding anything to the contrary, the city traffic engineer is authorized to modify any residential parking district restrictions or boundaries at any time if the city traffic engineer determines that such modification is warranted for health or safety reasons.

E. Removal of parking restrictions, dissolution of residential traffic parking districts.

1. Right to apply. Except as provided in this section, an owner of property in a residential parking district may petition to have the parking restrictions of such district removed as to the block in which such person owns property or petition to have the entire residential parking district be dissolved.

2. Application for petition.

a. Application. One or more owners of property in a block within a residential parking district shall complete, sign and submit to the city traffic engineer an application to remove the parking restrictions of a residential traffic parking district from one or more blocks within the district or to dissolve the entire district. The application shall be on a form approved by the city traffic engineer. The applicant shall state the location of the block or blocks that are the subject of the application or the location of the residential parking district if the dissolution of the district is sought.

b. Application fee. There shall be a nonrefundable application fee in the established amount which shall be paid at the time the application is filed.

c. Petition requirements. The city traffic engineer shall verify the location of the block or district upon receipt of an application. A petition will be given to the applicant, which, when returned must meet the following criteria to be considered valid.

1) The petition must be signed by at least one of the owners of seventy-five percent of the property in the block, blocks or district identified in the petition.

2) Petitions shall be on a form approved by the city traffic engineer. Petition shall contain (1) the signature of the owner, (2) the name of the owner in print (3) the property or properties in the block owned by the owner, (4) the date the petition was issued by the city traffic engineer to the applicant, (5) a precise statement that the purpose of the petition is to remove the traffic parking restrictions of the residential parking district for the block or blocks identified in the petition or that the purpose is to dissolve a residential parking district (6) the boundaries of the district or block(s) that are the subject of the petition. The owner's name and property address shall be clearly printed or typed. The city traffic engineer shall not consider illegible addresses or printed names when qualifying the petition.

3) The petition shall be returned to the city traffic engineer within thirty days from the time the city traffic engineer provides the petition to the applicant as shown by the date on the petition.

4) Upon submission of the completed petition to the city traffic engineer, the applicant shall sign a certificate on a form approved by the city traffic engineer declaring that to the best of his knowledge and belief, each signature was signed by an owner of property in the block or blocks or district identified in the petition.

3. City traffic engineer's evaluation. Upon receipt of a petition meeting the requirements of this section, the city traffic engineer shall verify that the required signatures were provided in the petition and that the remaining requirements of this section have been met.

4. Notice. The city traffic engineer shall notify the applicant within thirty days of the day the petition is submitted to the office of the city traffic engineer whether the applicant has met the requirements of this section, citing any requirements that have not been met.

5. Designation of date. If the city traffic engineer determines that the requirements of this section have been met, they shall designate a date on which the parking requirements of that district shall end in the block or blocks identified in the petition and instruct the appropriate city departments to remove all signage and revoke all permits and notify the applicant.

6. Dissolution of district. If the city traffic engineer determines that the requirements of this section have been met when the petition is submitted to dissolve the residential parking district, they shall submit the petition and his findings and recommendations to the city council for consideration and notify the applicants of his findings and recommendations. The city council shall determine by ordinance whether or not the residential parking district should be dissolved.

7. Appeal. When the city traffic engineer finds that the applicant has not met the requirements to remove parking restrictions from one or more blocks or to dissolve a residential parking district,

the city traffic engineer shall send the applicant notice of his decision. The applicant may appeal the decision to the city council by submitting an appeal to the city traffic engineer on a form approved by the city traffic engineer. The appeal must be submitted within fifteen consecutive calendar days after the date of applicant's receipt of the notice of the city traffic engineer's decision. The appeal shall state the basis for the appeal specifying any findings by the city traffic engineer that the appellant asserts are in error. The city council may uphold the decision of the city traffic engineer, remand the matter to the city traffic engineer for further consideration, or allow the removal of parking restrictions from one or more blocks or dissolve the residential parking district.

8. One-year waiting period. The city traffic engineer shall not accept applications for a petition to remove the parking restrictions of a residential parking district from one or more blocks that are within such district or to dissolve a residential parking district within one year from the date of designation of such district by the city council except as provided in this section.

9. Six-month waiting period. Property owners who meet the requirements of this section to remove the parking restrictions of a block or blocks within a residential parking district may have such parking restrictions rescinded between six months and one-year after the designation of the restrictions on parking in such block or blocks by the city traffic engineer, provided they pay to the city the cost of labor and materials to remove the parking restriction signs in the block, blocks or district. Property owners who meet the requirements of this section to dissolve the residential parking district may have such parking restrictions rescinded between six months and one-year after the designation of such district, provided they pay to the city the cost of labor and materials to remove the parking restriction signs in the block, blocks or district, provided that the city council has approved dissolving the district.

F. Petitions for reinstatement of residential parking district. The city traffic engineer shall not accept an application for the establishment of residential parking restrictions in one or more blocks within a district when the application includes a block in which residential parking restrictions previously existed and were eliminated within one year of the date of the application.

G. Parking permits.

1. Permit required. It shall be a violation for any person to park a motor vehicle on a city street in a curbside parking space on any day or during any hours in a residential parking district without the display, as required in this section, of a parking permit issued by the city traffic engineer pursuant to this chapter ("parking permit") allowing the motor vehicle to be parked in the district and during the times specified on residential parking district signs posted in such district by the city.

2. Effect of issuance of permit. A parking permit shall not guarantee or reserve to the holder a curbside parking space within a residential parking district. A parking permit shall not authorize the holder to cause to stand or park a motor vehicle at such places where parking is prohibited or during such times as when the stopping, standing or parking of motor vehicles is set aside for specified types of vehicles, nor exempt the holder from observance of any traffic regulation including, but not limited to, vehicle abandonment laws, towing laws or parking meter payment.

3. Temporary suspension of permit. The city traffic engineer may temporarily suspend the parking allowed pursuant to a parking permit for emergency or construction purposes within the residential parking district.

4. Limitations on the issuance of parking permits.

a. The city traffic engineer may limit the parking permit to certain hours of the day and certain days of the week in any residential parking district or a block within the district.

b. Only one permit shall be issued for each vehicle.

c. Permits may only be used in the residential parking district for which they are issued.

d. The number of residential parking permits that may be issued is limited to two residential parking permits for each household on each block or blocks within a residential parking district. At the discretion of the city traffic engineer additional residential parking permits maybe granted for each household on each block or blocks within a residential parking district.

e. No permit shall be issued if the applicant has pending parking tickets issued in the city.

5. Prohibitions regarding the use of parking permits.

a. The side of the permit showing the residential parking district for which the permit was issued shall be displayed in the vehicle at all times the vehicle is parked in the district for which it was issued in a manner that allows the entire permit to be viewed from outside the vehicle through the front windshield.

b. Expired permits shall not be displayed in parked vehicles.

c. Permits shall be returned to the city traffic engineer when the permit expires, the person to whom the permit was issued no longer resides in the residential parking district, and when the vehicle to which the permit was issued is loaned (for more than thirty days) or is stolen, sold or traded.

d. Permits shall not be transferred, provided that owners who obtain visitor permits from the city traffic engineer may provide such visitor permits to their tenants.

e. Permits shall not be displayed in a vehicle for which the permit was not issued.

6. Requesting parking permits.

a. All parking permits under this section may be issued by the city traffic engineer or his designee upon receipt of a completed application which provides the information required under this section.

b. All applicants must present a valid driver's license or other government-issued identification showing the applicant's photograph.

c. All applications shall be accompanied by the established fee for the parking permit(s) requested in the manner established in Section 12.44.280 M.

H. Residential parking permits. The following requirements must be met before a residential parking permit may be issued.

1. Residents. Each applicant must demonstrate that they are a current resident of the residential parking district for which the permit is to be issued by providing one of the following documents which shows that the applicant resides in the residential parking district:

a. A current electric, gas, telephone or water bill for service at the resident's address within the district that is dated within thirty days of the application for a permit;

b. A lease of premises or contract for sale of a residence that lists the applicant's residence within the district; or

c. Any other current valid document issued by a government agency that shows that the applicant resides within the district.

2. Armed Forces. Members of the Armed Forces whose home of record is outside El Paso County and currently reside in a residential parking district are eligible to apply for a residential parking permit provided they show a valid military identification card and one of the following which shows that the applicant resides in the residential parking district:

a. A current electric, gas, telephone or water bill or application for service at the resident's address within the district that is dated within thirty days of the application for a permit;

b. A lease of premises or contract for sale of a residence that lists the applicant's residence within the district; or

c. Any other current valid document issued by a government agency that shows that the applicant resides within the district.

I. Visitor parking permits.

1. Eligibility. Visitor parking permits may be issued by the city traffic engineer for each property in the residential parking district. Two visitor permits may be issued at no additional cost to owners and residents of a residential parking district who have purchased at least one residential parking permit.

2. Limitations. Visitor parking permits shall be subject to all the requirements and limitations for a residential parking permit.

J. New resident temporary parking permit. A new resident temporary parking permit may be obtained from the city traffic engineer by submitting an application in the same manner as is required in this section for applying for residential parking permits except that no document shall be required that contains the address located within the residential parking district. The new resident temporary parking permit shall expire at the end of the ninetieth day after its issuance and shall be subject to all other requirements and limitations of a residential parking permit. No residential parking permit shall be issued to the holder of new resident temporary parking permits until all new resident temporary parking permits issued to the applicant are returned to the city traffic engineer.

K. Temporary one day parking permits. Any person who is eighteen years of age or older and a resident of a residential parking district may apply for one or more temporary one day parking permits. Such permits shall be for no more than fours on the day specified in the permits. The application shall state the hours for which the permits are to be issued, the number of permits requested and that without the temporary permits, visitors to the applicant's residence would not be able to park their vehicles without violating parking ordinances. If the city traffic engineer finds adequate parking is not available during the hours for which a temporary permit is requested and that the issuance of the permits will not unduly impair traffic and safety during the time of their validity, then they shall issue the appropriate number of permits. The city traffic engineer may limit the streets or portions of streets on which temporary one day parking permits shall be valid. The city traffic engineer may issue the requested number of temporary parking permits or less than the requested amount based on traffic and safety determinations made by the city traffic engineer. The number of such permits shall not at any time exceed fifty percent of the number of parking spaces located within the residential parking district in which the temporary permits are valid.

L. Owner's parking permit. Subject to the limitations in this section, each owner of property within a residential parking district may obtain an annual owner's parking permit, provided that such owner shall not be required to show current residency at the property they own in the district but shall be required to provide proof of ownership.

M. Exemptions. Any emergency vehicle, including, but not limited to, an ambulance, fire engine or police vehicle, which is under the control of an individual providing service to a property located on a street in a residential parking district shall be permitted to stand or be parked on a street in the area without being limited by the residential parking district prohibitions or restrictions. Additionally, any vehicle, including, but not limited to, a delivery, utility, or service vehicle which is under the control of an individual providing service to a property or infrastructure within the district located on a street in the residential parking district shall be permitted to stand or be parked on a street in the area without being limited by the residential parking district prohibitions or restrictions.

N. Residential parking permit, visitor parking permit, owner's parking permit and temporary one-day permit fees. The following fees are established and shall be charged: (1) a residential parking permit fee, (2) a visitor parking permit fee, (3) an owner's parking permit fee, (4) a new resident temporary permit fee, and (5) a temporary one-day permit fee. The residential parking permit fee, new resident temporary permit fee, and the owner's parking permit fee shall be charged for each authorized vehicle. The visitor parking permit fee shall be charged for each visitor parking permit issued. The visitor parking permit fee shall be charged only when a residential or owner's parking permit has not been purchased. Temporary one-day permit fees shall be charged for each permit issued.

O. Permit term. Residential parking permits, owner's parking permits and visitor parking per-

mits shall be valid for a consecutive twelve-month period from the day they are issued by the city traffic engineer and shall be renewable annually provided that the applicant provides evidence that they are still eligible for the permit. The permit may be renewed by mail provided that proof of eligibility and fee payment are also included with the renewal application.

P. Revocation of permits. A residential parking permit, owner's parking permit or visitor parking permit may be revoked for the following reasons:

1. The transfer or assignment of a permit.

2. The applicant for the permit falsely represented himself as being eligible for a permit, submits false documentation, or otherwise makes a false statement of a material fact on an application for a permit.

3. The permittee loses his status as a resident or other qualification to apply for a permit.

Q. Lost or stolen permits. The city traffic engineer may replace a lost, stolen or destroyed residential parking permit, owner's parking permit or visitor parking permit. To be eligible to receive a replacement permit, the permit holder must submit a signed affidavit stating the permit was lost, stolen or destroyed and pay the established permit replacement fee. The remaining part of a damaged permit shall be submitted to the city traffic engineer before receiving a replacement permit.

R. Signs. The city shall cause appropriate signs to be placed in residential parking districts that provide notice of the parking restrictions that apply in the district. The signs shall be posted on those streets restricting all parking except parking by the holders of permits that are granted pursuant to this section. The signs placed in these areas shall be of such character as to readily inform an ordinarily observant person of the existence of the parking restrictions.

S. Violations. Any person who violates any provision of this chapter shall be subject to the penalties set forth in Section 12.84.010 B., except that a violation of the provisions of this section related to the parking, standing or stopping of vehicles shall be a civil offense and violation of Section 12.84.010 A. and subject to the administrative procedures provided in Chapter 12.85 (Parking Violations). Fines shall be in accordance with the schedule of standard fines adopted by resolution of city council.

(Ord. No. 17710, § 1, 1-17-2012; Ord. No. 18431, § 1, 10-27-2015; Ord. No. 19154, § 1, 3-16-2021; Ord. No. 019705, § 1, 1-7-2025)

12.44.290 Restrictions on parking in downtown parking districts.

A. Policy. It is the policy of the city to reduce hazardous traffic conditions and congested parking conditions within designated downtown districts resulting from the parking of vehicles by persons using commercial, industrial, governmental and education facilities and to protect the residents of designated downtown districts from unreasonable burdens in gaining access to their residences; to preserve the value of the property in those districts; to preserve the safety of pedestrians and motorists; for the peace, order, comfort, convenience and welfare of the inhabitants of the city.

B. Definitions. The following definitions shall apply to this section:

"Block" means a continuous area adjacent to a street between street intersections on one or both sides of such street or, in the instance of a dead end street, the contiguous area from the last intersection of that street with another street to the end of such street on one or both sides of such street.

"Downtown parking district" means a contiguous area designated by the city in which a downtown parking district parking permit issued for said area is effective. Downtown parking districts are identified in Section 12.88.220 (Schedule XIX) of this code.

"Owner" means an owner of record in the El Paso county clerk's records of a property within a downtown parking district.

"Parking permit" means a parking permit authorizing a motor vehicle to park in a curbside metered parking space free of charge in a downtown parking district or in a non-metered curbside parking space in a downtown parking district where such parking is prohibited except with a parking permit.

"Property" means a parcel of land containing at least one residential dwelling unit and has a property or parcel identification number issued by the central appraisal district.

"Resident" means the owner or tenant who occupies a residential property in a downtown parking district.

"Residential property" means premises containing one or more dwelling units in a downtown parking district, such as duplexes, condominiums, apartment complexes and dormitories that contain habitable rooms for nontransient occupancy and are designed primarily for living, sleeping, cooking and eating therein, unless such premises are actually occupied and used exclusively for other purposes.

C. Establishment of downtown parking districts.

1. Establishment: Downtown parking district boundary lines shall be created, adjusted and dissolved by ordinance. Downtown parking districts established in Section 12.88.290 (Schedule XIX) of this code shall continue in existence until removed by amendment to that section.

a. Districts initiated by city council. City representatives may propose to create or dissolve a downtown parking district by submitting a proposal to the traffic engineer. When the proposal is to create a district, the traffic engineer shall evaluate the need for the district, identify the appropriate boundaries for such district and submit his findings and recommendations to the city council. The city council by ordinance shall determine whether to create, adjust, or dissolve downtown parking district boundary lines.

D. Parking permits.

1. Permit required.

a. It shall be a violation for any person to park a motor vehicle on a city street in a curbside metered parking space on any day or during any hours in a downtown parking district unless a coin or coins of United States currency, tokens, a parking meter debit card, or other approved payment method as provided in Section 12.56.040 and of the appropriate denominations shall have been deposited therein, or shall have been previously deposited therein for an unexpired interval of time, and such meter has been placed in operation, without the display, as required in this section, of a parking permit issued by the City of El Paso pursuant to this chapter allowing the motor vehicle to be parked in the downtown parking district.

b. It shall be a violation for any person to park a motor vehicle in a curbside parking space along West Missouri Avenue from Durango Street to Coldwell Street and Coldwell Street from West Missouri Avenue to West Franklin Avenue in zone A during the days or times specified on the posted signs, without the display of a parking permit issued by the City of El Paso pursuant to this chapter allowing the motor vehicle to be parked in the downtown parking district.

2. Effect on issuance of permit. A parking permit shall not guarantee or reserve to the holder a curbside parking space within a downtown parking district. A parking permit shall not authorize the holder to cause to stand or park a motor vehicle at such places where parking is prohibited or during such times as when the stopping, standing or parking of motor vehicles is set aside for specified types of vehicles, nor exempt the holder from observance of any traffic regulation including, but not limited to, vehicle abandonment laws or towing laws.

3. Temporary suspension of permit. The traffic engineer may temporarily suspend the parking allowed pursuant to a parking permit for emergency or construction purposes within the downtown parking district.

4. Limitations on the issuance of parking permits.

a. The traffic engineer may limit the parking permit to certain hours of the day and certain days of the week in any downtown parking district or a block within a district.

b. Only one permit shall be issued for each vehicle.

c. Permits may only be used in the downtown parking district for which they are issued.

d. The traffic engineer may limit the number of vehicles that may be issued a permit for each household on each block or blocks within a downtown parking district when such limitation is appropriate to accommodate the parking needs within the block or blocks in the downtown parking district.

e. No parking permit shall be issued if the applicant has pending parking tickets issued in the city.

5. Prohibitions regarding the use of downtown parking district parking permits.

a. The side of the permit showing the downtown parking district for which the permit was issued shall be displayed in the vehicle at all times the vehicle is parked in the downtown parking district for which it was issued in a manner that allows the entire permit to be viewed from outside the vehicle through the lower passenger side of the front windshield.

b. Expired parking permits shall not be displayed in parked vehicles.

c. Parking permits shall be returned to the City of El Paso when said permit expires, the person to whom the parking permit was issued no longer resides in the downtown parking district, and when the vehicle to which the parking permit was issued is loaned (for more than thirty days) or is stolen, sold or traded.

d. Parking permits shall not be transferred.

e. Parking permits shall not be displayed in a vehicle for which said permit was not issued.

6. Requesting parking permits.

a. All parking permits under this section may be issued by the City of El Paso upon receipt of a completed application which provides the information required under this section.

b. All applicants must present a valid driver's license or other government-issued identification showing the applicant's photograph.

c. All applications shall be accompanied by the established fee for the parking permit(s) requested in the manner established in Section 12.44.290.G.

E. Downtown parking district parking permit application requirements: The following requirements must be met before a downtown parking district parking permit may be issued.

1. Residents: Each applicant must demonstrate that he/she is a current resident of the downtown parking district for which the parking permit is to be issued by providing one of the following documents which shows that the applicant resides in the downtown parking district:

a. A current electric, gas, telephone or water bill for service at the residents address within the downtown parking district that is dated within thirty days of the application for a permit;

b. A lease of premises or contract for sale of a residence that lists the applicant's residence as within the downtown parking district; or

c. Any other current valid document issued by a government agency that shows that the applicant resides within the downtown parking district.

2. Armed forces: Members of the armed forces whose home of record is outside El Paso County and currently reside in a downtown parking district are eligible to apply for a downtown parking permit provided they show a valid military identification card and one of the following which shows that the applicant resides in the downtown parking district:

a. A current electric, gas, telephone or water bill for service at the resident's address within the district that is dated within thirty days of the application for a parking permit;

b. A lease of premises or contract for sale of a residence that lists the applicant's residence as within the downtown parking district; or

c. Any other current valid document issued by a government agency that shows that the applicant resides within the downtown parking district.

2. Armed forces: Members of the armed forces whose home of record is outside El Paso County and currently reside in a downtown parking district are eligible to apply for a downtown parking permit provided they show a valid military identification card and one of the following which shows that the applicant resides in the downtown parking district:

a. A current electric, gas, telephone or water bill for service at the resident's address within the district that is dated within thirty days of the application for a parking permit;

b. A lease of premises or contract for sale of a residence that lists the applicant's residence as within the downtown parking district; or

c. Any other current valid document issued by a government agency that shows that the applicant resides within the downtown parking district.

F. New resident temporary parking permit. A new resident temporary parking permit may be obtained from the City of El Paso by submitting an application in the same manner as is required in this section for applying for downtown parking permits except that no document shall be required that contains the address located within the downtown parking district. The new resident temporary parking permit shall expire at the end of the ninetieth day after its issuance and shall be subject to all other requirements and limitations of a downtown parking permit. No parking permit described under Subsection D of this chapter shall be issued to the holder of new resident temporary parking permits until all new resident temporary parking permits issued to the applicant are returned to the City of El Paso.

G. Downtown parking district parking permit and new resident parking permit fees. The following fees are established and shall be charged: (1) a downtown parking district parking permit fee, assessed exclusively to the first permit issued to a residence, (2) a downtown parking district parking permit fee, assessed for each subsequent permit issued to a residence after the first, (3) a new resident temporary parking permit fee, and (4) a replacement downtown parking district parking permit fee. The downtown parking district parking permit fee and new resident temporary permit fee shall be charged for each authorized vehicle.

H. Parking permit term. Parking permits shall be valid for a consecutive twelve-month period from the day they are issued by the City of El Paso and shall be renewable annually provided that the applicant provides evidence that he/she is still eligible for the permit. The permit may be renewed by mail provided that proof of eligibility and fee payment are also included with the renewal application.

I. Revocation of parking permits. A parking permit may be revoked for the following reasons:

1. The transfer or assignment of a parking permit.

2. The applicant for the parking permit falsely represented himself as being eligible for a parking permit, submits false documentation, or otherwise makes a false statement of a material fact on an application for a parking permit.

3. The parking permit holder loses his status as a resident or other qualification to apply for a parking permit.

J. Lost or stolen parking permits. The City of El Paso may replace a lost, stolen or destroyed downtown parking permit. To be eligible to receive a replacement parking permit, the permit holder must submit a signed affidavit stating that the parking permit was lost, stolen or destroyed and pay the established parking permit replacement fee. The remaining part of a damaged parking permit shall be submitted to the traffic engineer before receiving a replacement parking permit.

K. Signs. The city shall cause appropriate signs to be placed in downtown parking districts that provide notice of the extent of each district. The signs placed in these areas shall be of such char-

acter as to readily inform an ordinarily observant person of the existence of the downtown parking district.

L. Violations. Any person who violates any provision of this chapter shall be subject to the penalties set forth in Section 12.84.010 B., except that a violation of the provisions of this section related to the parking, standing or stopping of vehicles shall be a civil offense and violation of section 12.84.010 A. and subject to the administrative procedures provided in Chapter 12.85 (Parking Violations). Fines shall be in accordance with the schedule of standard fines adopted by resolution of city council.

(Ord. No. 17942, § 1, 2-5-2013; Ord. No. 18154, § 1, 4-1-2014)

12.44.300 Educational parking districts.

A. Policy. It is the policy of the city to reduce hazardous traffic conditions and congested parking conditions resulting from the use of streets within areas zoned for residential uses resulting from the parking of vehicles by persons using commercial, industrial, governmental and education facilities; to protect the residents of designated residential districts from unreasonable burdens in gaining access to their residences; to preserve the character of designated residential districts as residential districts; to preserve the safety of students attending elementary and secondary schools in an area where parking is limited and restricted; to preserve the safety of motorists, children and other pedestrians; and for the peace, order, comfort, convenience and welfare of the inhabitants of the city.

B. Definitions. The following definitions shall apply to this section:

"Block" means a continuous area adjacent to a street between street intersections on one or both sides of such street or, in the instance of a dead end street, the contiguous area from the last intersection of that street with another street to the end of such street on one or both sides of such street.

"Educational facility" means an elementary or secondary school as defined by Sections 20.02.840 and 20.02.841, of the El Paso City Code, located within an established residential parking district.

"Parent/legal guardian" means the parent or legal guardian of one or more students enrolled in an educational facility.

C. Creation of educational parking districts.

1. Creation: Educational parking districts shall be created, adjusted and dissolved by ordinance. Educational parking districts established in Section 12.88.200 shall continue in existence until removed by amendment to that section.

a. To initiate the creation of an educational parking district, a representative of the educational facility shall submit an application to create an educational parking district.

b. No fee shall be charged for the application for the creation of an educational parking district. The application shall identify the block or blocks that are proposed to be in the educational parking district. The requested educational parking district must be within an existing residential parking district as defined by Section 12.88.200 of the El Paso City Code. The traffic engineer shall evaluate the need for educational parking restrictions in the block or blocks identified in the application and the area surrounding such block or blocks, based upon the availability of parking spaces that exist, safety issues that may exist because of congested street parking in the proposed district, and any other criteria that will promote the safety, health, and welfare of the public. If the criteria are met, the Traffic Engineer shall recommend appropriate boundaries for the district. The traffic engineer shall include in his evaluation the reasons why the block or blocks meet or do not meet the criteria. All applications, evaluations and recommendations of the traffic engineer shall be submitted to the city council for approval or denial of creating the educational parking district.

2. Criteria. The following conditions shall exist in order to create an educational parking district:

a. The proposed district shall be within an existing residential parking district as defined by Section 12.88.200 of the El Paso City Code; and

b. An educational facility exists within the block or blocks in the proposed district that users

of nonresidential vehicles parked on the street in the block will have access to the educational facility; and

c. An inadequate number of parking spaces exist for residents and nonresidents to park their vehicles in the block or blocks in the proposed district; and

d. A safety issue has been identified because of congested street parking block or blocks in the proposed district; and

e. The traffic engineer determines that a parking permit system would alleviate the lack of parking for residents and non-residents of the block or blocks in the proposed district.

f. The blocks in the proposed district are zoned as a light density residential district.

3. Traffic engineer's evaluation. Upon receipt of an application meeting the requirements of this section, the traffic engineer shall evaluate the nature and extent of the problems, if any, caused by availability of nonresidential parking in each block using the criteria set forth in Section 12.44.300.C.2.a. through f. If deemed necessary by the traffic engineer, more detailed studies shall be conducted including, but not limited to an inventory of legal curbside parking spaces available.

4. Notice. The traffic engineer shall notify the applicant within thirty city business days of the day the application is submitted to the office of the traffic engineer whether the applicant has met the requirements for the implementation of educational parking restrictions, citing any requirements that have not been met.

5. Appeal. When the traffic engineer does not find that the applicant has met the requirements to impose educational parking restrictions, the traffic engineer shall send the applicant notice of his decision. The applicant may appeal the decision to the city council by submitting an appeal to the traffic engineer on a form approved by the traffic engineer. The appeal must be submitted within fifteen consecutive calendar days after the date of applicant's receipt of the notice of the traffic engineer's decision. The appeal shall state the basis for the appeal specifying any findings by the traffic engineer that the appellant asserts are in error.

D. Removal of parking restrictions, dissolution of educational parking districts.

1. The representative of the educational facility in an educational parking district may request to have the parking restrictions of such district removed as to the block or blocks in which the representative requests or to have the entire educational parking district dissolved.

2. The city council reserves the right to dissolve an educational parking district upon 90 days advance written notice to the representative of the educational facility.

E. Parking permits.

1. Permit required. It shall be a violation for any person to park a motor vehicle on a city street in a curbside parking space on any day or during any hours in an educational parking district without the display, as required in this section, of a parking permit issued pursuant to this chapter ("parking permit") allowing the motor vehicle to be parked in the district and during the times specified on educational parking district signs posted in such district by the city.

2. Effect of issuance of permit. A parking permit shall not guarantee or reserve to the holder a curbside parking space within an educational parking district. A parking permit shall not authorize the holder to cause to stand or park a motor vehicle at such places where parking is prohibited or during such times as when the stopping, standing or parking of motor vehicles is set aside for specified types of vehicles, nor exempt the holder from observance of any traffic regulation including, but not limited to, vehicle abandonment laws, towing laws or parking meter payment.

3. Educational parking permit. No educational parking permits shall be issued until the city and the educational facility have entered into an agreement which addresses the distribution, revocation and replacement of the permits. Subject to the limitations in this section, an educational parking permit will only be issued to a parent, legal

guardian, and/or other auxiliary personnel, such as interns, volunteers, and tutors associated with or working at the educational facility within the identified educational parking district. An educational parking permit shall not be given to residents or members of the existing residential parking district that have an existing parking permit or members of the educational facility's teaching or administrative staff. Permits shall be valid for one year from the date of issuance.

4. Notwithstanding any other provision of this chapter limiting or restricting the parking or standing of vehicles on certain streets or highways, or portions thereof, during all or certain hours of the day, vehicles displaying the appropriate educational parking permit as hereafter provided may park on streets or portions thereof designated as an educational parking district and shall not be subject to the otherwise applicable parking limitation or restrictions; provided, however, such exemption shall not be effective unless signs or markings giving notice thereof are installed and in place; and further provided, such exemption shall not be permitted at loading zones or when or where parking or stopping is prohibited as posted.

F. Exemptions. Any emergency vehicle, including, but not limited to, an ambulance, fire engine or police vehicle, which is under the control of an individual providing service to a property located on a street in an educational parking district shall be permitted to stand or be parked on a street in the area without being limited by the educational parking district prohibitions or restrictions. Additionally, any vehicle, including, but not limited to, a delivery, utility, or service vehicle which is under the control of an individual providing service to a property or infrastructure within the district located on a street in the educational parking district shall be permitted to stand or be parked on a street in the area without being limited by the educational parking district prohibitions or restrictions.

G. Signs. The city shall cause appropriate signs to be placed in educational parking districts that provide notice of the parking restrictions that apply in the district. The signs shall be posted on those streets restricting all parking except parking by the holders of permits that are granted pursuant to this section. The signs placed in these areas shall be of such character as to readily inform an ordinarily observant person of the existence of the parking restrictions.

H. Conflict. Where a conflict or overlap of boundaries or parking restrictions exist between an educational parking district and any other parking district, the educational parking district times and restrictions shall control.

I. Violations. Any person who violates any provision of this chapter shall be subject to the penalties set forth in Section 12.84.010.B, except that a violation of the provisions of this Section related to the parking, standing or stopping of vehicles shall be a civil offense and violation of Section 12.84.010.A and subject to the administrative procedures provided in Chapter 12.85 (Parking Violations). Fines shall be in accordance with the schedule of standard fines adopted by resolution of city council.

(Ord. No. 18407, § 1, 8-18-2015)

Chapter 12.46

MOBILE FOOD VENDORS

Sections:

12.46.010 Definitions.

12.46.020 Mobile food vending regulations.

12.46.030 Vehicle requirements and inspections.

12.46.010 Definitions.

For the purposes of this chapter, the following words and terms shall have the following meanings, unless the context clearly indicates otherwise:

"Downtown area" means the area bounded by Yandell Street, Kansas Street, Cesar Chavez/Border Highway and Santa Fe Street, and including the entire width of the public rights-of-way within said area.

"Mobile food establishment" means a vehicle-mounted food establishment designed to be readily movable.

"Mobile food vendor" means a food establishment contained within or mounted on a motor vehicle designed to be driven along the streets for the purpose of stopping briefly for the purpose of selling food or other edible or potable substances directly from the vehicle to customers who come to the vehicle. (Ord. 14847 § 1 (part), 2001)

12.46.020 Mobile food vending regulations.

It shall be unlawful for the operator of any motorized mobile food establishment to stop, stand or park such vehicle on any public street or thoroughfare when ice cream, frozen desserts, candy or other edible or potable substances are sold or offered for sale, from such vehicle, unless such operator before making any such sale and at the time of such sale shall operate his or her vehicle in the following manner:

A. Such vehicle shall stop, stand or park at the right curb on a two-way street and at either curb on a one-way street, within eighteen inches of such curb before any sale or offering of sale shall be made;

B. Such vehicle shall not stop, stand or park in the downtown area, unless a special privilege is granted by city council. For purposes of this section, the downtown area shall be defined as the area bounded by Yandell Street, Kansas Street, Cesar Chavez/Border Highway and Santa Fe Street, and including the entire width of the public rights-of-way within said area.

C. Such vehicle shall be allowed to stop, stand or park on any public street or right-of-way, provided this area is not within twenty feet of an intersection, such vehicle does not obstruct a pedestrian crosswalk and the area is not prohibited to the stopping, standing or parking of such vehicles;

D. Such vehicle shall not obstruct vehicular or pedestrian traffic;

E. Reserved;

F. Vendors shall only serve customers when the mobile vending vehicle is parked, and at such stops the vehicle's motor shall be cut off, unless its operation is essential to producing or maintaining the product sold. Vendors whose vehicles require the continuous operation of the motor to produce or maintain the product must either apply the parking brake if the vehicle is equipped with a manual transmission or place the vehicle's automatic transmission in the "park" position while conducting sales;

G. Reserved;

H. No sale or offering to sell shall be made from any mobile vending vehicle on city right-of-way within two blocks of any school;

I. No sale or offering to sell shall be made on any street or thoroughfare where the lawful speed limit exceeds thirty miles per hour;

J. On and after June 15, 2001, the operator of such vehicle shall illuminate the blinking or flashing lights required under Section 12.46.030 immediately upon stopping, standing or parking the vehicle for the purpose of making a sale and the lights shall remain illuminated until such time as the vehicle resumes travel. It shall be unlawful for a mobile food vendor to illuminate the blinking or flashing lights required under Section 12.46.030 while the vehicle is moving;

K. Any person violating any provision of this section shall be guilty of a misdemeanor and punished by a fine not exceeding five hundred dollars pursuant to Section 12.84.010. (Ord. 14847 § 1 (part), 2001)
(Ord. No. 17545, § 1, 4-26-2011)

12.46.030 Vehicle requirements and inspections.

A. On and after June 15, 2001, mobile food vending vehicles shall be equipped with front and rear blinking or flashing caution signals in addition to the standard vehicle flashers. The front signals shall be mounted above the headlights and as high on the vehicle as practicable. The front signals shall be as widely spaced laterally as practicable and shall display simultaneously blinking or flashing amber lights. The rear signals shall be at least six inches in diameter, visible from five hundred feet away in daylight, mounted above the turn signals and as high on the vehicle as practicable, as widely spaced laterally as practicable and shall display simultaneously blinking or flashing amber or red lights.

B. On and after June 15, 2001, police officers may inspect mobile food vending vehicles operating on the streets or thoroughfares of the city for the purpose of determining whether the vehicles comply with this chapter and if the signals required under this section are present and operational.

C. The operator of a mobile food vending vehicle commits an offense if on or after June 15, 2001, he or she refuses to illuminate the lights on their vehicle required under this section, at the request of a police officer during an inspection conducted in accordance with this section. (Ord. 14847 § 1 (part), 2001)

Chapter 12.48

LOADING ZONES, BUS, TAXI STANDS, AND RIDESHARE ZONES

Sections:

12.48.010 Loading zone—Authority to designate.

12.48.020 Loading zone—Prohibited uses.

12.48.030 Loading zone—Pick-up and discharge of passengers.

12.48.040 Public carrier stops, stands and routes—Authority to designate.

12.48.050 Use of stands by buses, taxicabs, and rideshare vehicles.

12.48.060 Use of stands by other than those designated for.

12.48.070 Reserved.

12.48.010 Loading zone—Authority to designate.

The traffic engineer is authorized to designate, in locations appropriate to the needs of traffic and the convenience of the public, loading zones for either of two types of use:

A. Zones for Commercial Vehicles Only. In a loading zone designated for commercial vehicles only, loading and unloading will be restricted between the hours of seven a.m. to seven p.m., unless otherwise specified on posted signs. A "commercial vehicle" means any motor vehicle (other than a motorcycle or passenger car) designed and used primarily for the transportation of property; or any motorcycle or passenger car which has been reconstructed so as to be used primarily for the transportation of property and is being so used; or any motorcycle or passenger car which has been reconstructed so as to be used primarily for the transportation of property and is being so used; or any motorcycle or passenger car which is being used primarily for the transportation of property and which has permanently displayed (not by magnetic or other removable signs) legible words identifying the business concern by which the vehicle is used.

B. Zones for General Use. In a loading zone designated for general use, loading and unloading will be restricted between the hours of seven a.m. to seven p.m., unless otherwise specified on posted signs.

C. Zones for Rideshare Use. In a loading zone designated for rideshare use, loading and unloading of passengers will be permissible twenty-four hours per day, unless otherwise specified on posted signs. (Ord. 13062 § 8, 1997: Ord. 8311 §§ 1, 2, 1985; prior code § 20-86)
(Ord. No. 019738, § 2, 5-28-2025)

12.48.020 Loading zone—Prohibited uses.

A. In a loading zone designated for commercial vehicles only, no person shall stop, stand or park any vehicle during the prohibited hours, except that the driver of a commercial vehicle as defined in Section 12.48.010 may use the zone, for not more than thirty minutes consecutively, for the expeditious unloading and delivery or pick-up and loading of merchandise or materials, unless otherwise specified on posted signs.

B. In a loading zone designated for general use, no person shall stop, stand or park any vehicle during the prohibited hours, except for the expeditious unloading and delivery or pick-up and loading of merchandise or materials during not more than thirty minutes consecutively, unless otherwise specified on posted signs.

C. Loading zones are not for the exclusive use of any particular business. (Ord. 13099 § 1, 1997; prior code § 20-87)

12.48.030 Loading zone—Pick-up and discharge of passengers.

The driver of a rideshare or taxi vehicle may stop temporarily at a loading zone for a maximum of five minutes, even during the restricted hours, for the purpose of and while actually engaged in loading or unloading passengers, but only when such stopping does not interfere with any other vehicle lawfully in or about to enter such zone for loading or unloading merchandise or materials. (Prior code § 20-88)
(Ord. No. 019738, § 3, 5-28-2025)

12.48.040 Public carrier stops, stands and routes—Authority to designate.

A. The traffic engineer is authorized and required to establish bus stops, bus stands, rideshare zones and stands for passenger common-carrier motor vehicles on such public streets in such places and in such number as may be determined to be of the greatest benefit and convenience to the public. Each such bus stop, bus stand, rideshare zone, or other stand shall be designated by appropriate signs or markings approved by the traffic engineer and installed by the city. When a passenger common-carrier company requests such designated stop areas for the loading and/or unloading of its passengers in the city right-of-way, such company shall pay the city for all costs related to the design and installation of the requested stop areas.

B. The traffic engineer is authorized and required to establish reasonably direct routes on city streets from state and federal roadways to destinations within the city and back to such state and federal roadways for those passenger common-carrier motor vehicles that operate under authority of permits issued by the surface transportation board or its successor agency. To become effective, the routes established by the traffic engineer and any amendments thereto shall require city council approval by resolution. Common-carrier passenger motor vehicles operating under permits issued by the surface transportation board or its successor agency shall not operate over city streets except on such routes as established by the traffic engineer and approved by the city council. The description of the routes established pursuant to this section shall be available to the public from the office of the traffic engineer and made available to the public electronically. Any passenger common carrier company may make a request to the traffic engineer to amend the routes to accommodate its access to facilities used by such common-carrier or to load and/or unload its passengers. The traffic engineer shall follow the procedures of this section in developing a route and presenting an amendment to the city council for its consideration (Ord. 8275 § 1, 1985; prior code § 20-89)
(Ord. 17290, § 1, 3-16-2010; Ord. No. 019738, § 4, 5-28-2025)

12.48.050 Use of stands by buses, taxicabs, and rideshare vehicles.

A. The operator of a bus shall not stand or park such vehicle upon any street at any place other than a bus stand so designated as provided herein.

B. The operator of a bus shall not stop such vehicle upon any street at any place for the purpose of loading or unloading passengers or their baggage other than at a bus stop, or bus stand, so designated as provided herein, except in case of an emergency.

C. The operator of a bus shall enter a bus stop, or bus stand, on a public street in such a manner that the bus when stopped to load or unload passengers or baggage shall be in a position with the right front wheel of such vehicle not further than eighteen inches from the curb and the bus approximately parallel to the curb so as not to unduly impede the movement of other vehicular traffic.

D. The operator of a taxicab shall not stand or park such vehicle upon any street at any place other than in a taxicab stand so designated as provided herein. This provision shall not prevent the operator of a taxicab from temporarily stopping in accordance with other stopping or parking regulations at any place for the purpose of and while actually engaged in the expeditious loading or unloading of passengers.

E. The operator of a taxicab and rideshare vehicle may stand or park such vehicle in a designated rideshare zone not to exceed a maximum of five minutes for the purpose of loading/unloading passengers. (Prior code § 20-90)
(Ord. No. 019738, § 5, 5-28-2025)

12.48.060 Use of stands by other than those designated for.

No person shall stop, stand or park a vehicle other than a bus in a bus stop, a taxicab in a

taxicab stand, or other than a rideshare vehicle in a rideshare zone when any such stop or stand has been officially designated and appropriately signed, except that the driver of a passenger vehicle may temporarily stop therein for the purpose of and while actually engaged in loading or unloading passengers when such stopping does not interfere with any bus or taxicab waiting to enter or about to enter such zone. (Prior code § 20-91)
(Ord. No. 019738, § 6, 5-28-2025)

12.48.070 Reserved.

Editor's note—Ord. No. 17690, § 19, adopted December 6, 2011, repealed § 12.48.070, which pertained to violation of Section 12.48.050 or 12.48.060—Penalty and derived from prior code § 20-91.1.

Chapter 12.52

PARKING RESTRICTIONS ON CERTAIN STREETS

Sections:

12.52.010 Applicability.

12.52.020 Parking prohibited at all times.

12.52.030 Parking prohibited during certain hours.

12.52.040 Stopping, standing and parking prohibited during certain hours.

12.52.050 Parking time limited.

12.52.060 Stopping, standing or parking prohibited during certain hours on any day.

12.52.070 Regulations not exclusive.

12.52.010 Applicability.

The provisions of this chapter prohibiting the standing or parking of a vehicle shall apply at all times or at those times herein specified, or as specified on official signs, except when it is necessary to stop a vehicle to avoid conflict with other traffic or in compliance with the directions of a police officer or official traffic-control device. (Prior code § 20-92)

12.52.020 Parking prohibited at all times.

When signs are erected or the curb is painted yellow giving notice thereof, no person shall park a vehicle at any time upon any of the streets as described in Schedule III, Section 12.88.030.
(Prior code § 20-94; Ord. No. 18573, § 1, 9-20-2016)

12.52.030 Parking prohibited during certain hours.

When signs are erected in each block giving notice thereof, no person shall park a vehicle between the hours specified in Schedule IV, Section 12.88.040, any day except Sundays and legal holidays within the district or upon any of the streets described in such schedule. (Prior code § 20-95)

12.52.040 Stopping, standing and parking prohibited during certain hours.

When signs are erected in each block giving notice thereof, no person shall stop, stand or park a vehicle between the hours specified in Schedule V, Section 12.88.050, of any day except Sundays and legal holidays within the district or upon any of the streets described in such schedule. (Prior code § 20-96)

12.52.050 Parking time limited.

When signs are erected in each block giving notice thereof, no person shall park a vehicle for longer than the times shown in Schedule VI, Section 12.88.060, within the district or upon any of the streets described in such schedule. (Ord. 11643 § 1, 1993: prior code § 20-97)

12.52.060 Stopping, standing or parking prohibited during certain hours on any day.

When signs are erected in each block giving notice thereof, no person shall stop, stand or park a vehicle between the hours specified in Schedule XVI, Section 12.88.170, of any day, including Sundays and legal holidays, within the districts, or upon any of the streets described in said schedule. (Prior code § 20-97.1)
(Ord. No. 17338, § 5, 6-1-2010)

12.52.070 Regulations not exclusive.

The provisions of this chapter imposing a time limit on parking shall not relieve any person from the duty to observe other and more restrictive provisions prohibiting or limiting the stopping, standing or parking of vehicles in specified places or at specified times. (Prior code § 20-93)

Chapter 12.54

TOWING REGULATIONS AND FEES

Sections:

12.54.010 Definitions.
12.54.020 Maximum fee schedule.
12.54.030 Removal of debris.
12.54.040 Penalty.
12.54.050 Towing fee studies.
12.54.060 Fees for police ordered towing services—Impoundment.

12.54.010 Definitions.

The following definitions shall apply in this section:

"Consent tow" has the same meaning as defined by V.T.C.A. Occupations Code § 2308.002.

"Incident management tow" has the same meaning as defined by V.T.C.A. Occupations Code § 2308.002.

"Nonconsent tow" has the same meaning as defined by V.T.C.A. Occupations Code § 2308.002, including an incident management tow.

"Police ordered tow" means any tow initiated or requested at the direction of a police officer who orders the removal of a vehicle that is unlawfully stopped in accordance with V.T.C.A. Transportation Code § 545.305 or incident management tow.

"Tow truck" has the same meaning as defined by V.T.C.A. Occupations Code § 2308.002.

"Tow company" has the same meaning as defined by V.T.C.A. Occupations Code § 2308.002.

"Vehicle owner or operator" has the same meaning as defined by V.T.C.A. Occupations Code § 2308.002. (Ord. 16957 § 1, 2008: Ord. 15076 § 2, 2002)
(Ord. No. 18137, § 1, 3-4-2014)

12.54.020 Maximum fee schedule.

A. The maximum fee that a tow company may charge for nonconsent tow service including the cost of the clean-up of debris left by the vehicle, regardless of the type of truck used is:

1. Light duty tows—$100.00 for towage of a vehicle with a manufacturer's gross vehicle weight rating of not more than 10,000 pounds and the clean-up of debris and cargos; or

2. Medium duty tows—$350.00 for towage of a vehicle with a manufacturer's gross vehicle weight rating of more than ten thousand pounds but less than twenty-five thousand pounds and the clean-up of debris and cargos.

3. Heavy duty tows—$450.00 for towage of a vehicle with a manufacturer's gross vehicle weight rating of more than twenty-five thousand pounds and the clean-up of debris and cargos.

B. An additional fee in an amount not to exceed twenty-five dollars may be charged for the use of dollies or go-jacks in connection with the tow.

C. If a tow truck operator tows a vehicle with a manufacturer's gross vehicle weight rating of more than ten thousand pounds and the tow takes longer than two hours, beginning from the time when the tow truck reports to the scene to the time when the actual towing, lifting or transporting job is completed, the tow truck operator may charge an additional fee in an amount not to exceed fifty-five dollars per hour for each hour over two hours. If the tow truck operator is required to manually move cargo from such a vehicle, the tow truck operator may charge an additional fee not to exceed the operator's actual cost for such manual cargo movement.

D. If the vehicle owner or operator is at or comes upon the scene where a tow company is attempting to tow a vehicle, and the vehicle owner or operator does not desire the vehicle to be towed, no charge shall be made and the vehicle owner or operator shall be allowed to take possession of the vehicle if the vehicle has not been hooked up by the tow truck. If the vehicle has been hooked up to the tow truck, but not towed from the scene, the

vehicle shall be released to the vehicle owner or operator upon payment of one-half the regular tow fee established in Section 12.54.020(A). (Ord. 15076 § 3, 2002)
(Ord. No. 18137, § 2, 3-4-2014; Ord. No. 18669, § 2, 5-2-2017; Ord. No. 18774, § 2, 4-17-2018)

12.54.030 Removal of debris.

A. Any tow company who tows a vehicle as a nonconsent tow shall completely remove from and near the site of the towed vehicle any and all wreckage or debris left from the vehicle, including all broken glass, debris and truck and vehicle cargos before leaving the site of the vehicle, as part of the fee to be charged for the nonconsent tow.

B. Any person whose vehicle becomes damaged, disabled or otherwise reaches a condition of dilapidation so as to drop debris while upon any street or roadway or upon the property of another shall remove or cause to be removed all debris left from the vehicle, including all broken glass, debris and truck and vehicle cargos, at the time that the vehicle is moved from the location where it was operated, damaged, disabled or otherwise parked.

C. It shall be an affirmative defense to prosecution under this section that the debris was located in or upon a lane of travel of a roadway at such time as when traffic was present on the roadway and no law enforcement officer was at the site to provide traffic direction and control to allow for the safe removal of the debris or that the debris was located upon property posted as no trespassing. (Ord. 15076 § 4, 2002)
(Ord. No. 18137, § 3, 3-4-2014)

12.54.040 Penalty.

Any person violating any provision of Sections 12.54.020 and 12.54.030 of this chapter commits an offense punishable by a fine not to exceed five hundred dollars pursuant to Section 12.84.010. (Ord. 16957 § 2, 2008: Ord. 15076 § 5, 2002)

12.54.050 Towing fee studies.

A. In the event that a towing company desires to request that the city conduct a study of the towing fees established under this chapter, the towing company shall send a written request to the chief of police, with a copy to the city attorney.

B. The towing company shall include with their request copies of pertinent information relating to the costs associated with performing the tows addressed by this chapter including but not limited to an explanation as to how the current fees do not adequately allow the towing company to cover their costs and a reasonable profit.

C. Upon receipt of the request for a towing fee study, the chief of police shall direct his department to gather information as may be available regarding the costs for performing various types of tows addressed by this chapter and survey Texas cities regarding any maximum fees that they have imposed for nonconsensual tows.

D. Not less than thirty days nor more than sixty days after the receipt of the towing company request, related information from a towing company as provided in Subsection A, and considering the information gathered by the police department, the chief of police or designee shall make a recommendation to city council regarding the appropriate fees for tows performed under this chapter. City council may act as deemed appropriate.

E. Towing fee studies may not be requested more than once every three years, unless the towing fee company assumes all costs associated with the study. (Ord. 15528 § 1, 2003)
(Ord. No. 18137, § 4, 3-4-2014; Ord. No. 18774, § 2, 4-17-2018)

12.54.060 Fees for police ordered towing services—Impoundment.

The following definitions shall apply in this section.

A. In any case where a vehicle other than a vehicle owned by the City of El Paso is released from a licensed vehicle storage facility or a vehicle storage facility owned by the city after being towed to the facility pursuant to a police ordered tow, and fees are collected from the vehicle owner, an additional twenty-dollar fee shall be collected and

remitted to the police department on behalf of the city to defray the costs associated with the police ordered towing of the vehicle.

B. In any case where a vehicle other than a vehicle owned by the City of El Paso is towed to a vehicle storage facility owned by the city, an impoundment fee of twenty dollars shall be collected from the vehicle owner prior to release.

C. The fees collected by a licensed vehicle storage facility shall be remitted on a quarterly basis, on or before the fifteenth day of months of January, April, July and September of each year and provide the vehicle identification number (VIN) of each vehicle for which the fee required under this section is being remitted.

D. Each licensed vehicle storage facility shall include the documentation required under this section for the collection and remittance of the city's fee with the documentation required to be made available to a police officer in the city under Title 43, Chapter 18 of the Texas Administrative Code. (Ord. 16957 § 3, 2008)
(Ord. No. 17700, § 1, 12-20-2011)

Chapter 12.56

PARKING METERS

Sections:

12.56.010 Designation—Use.

12.56.020 Installation.

12.56.030 Parking space designation—Use.

12.56.040 Operation—Time limits.

12.56.050 Use of slugs unlawful.

12.56.051 Use of altered United States coins unlawful.

12.56.060 Tampering with prohibited.

12.56.070 Applicability of proceeds.

12.56.080 Key—Custody—Duplicates.

12.56.090 Parking meter rates.

12.56.100 Designation of authority.

12.56.110 Proof of parking meter location and time limit.

12.56.010 Designation—Use.

A. The traffic engineer is hereby authorized to establish the location of metered parking spaces upon any street or portion of any street where it is determined, upon the basis of an engineering and traffic investigation, that the installation of parking meters shall be necessary to aid in the regulation, control, or inspection of the parking of vehicles. The parking of vehicles in such metered parking spaces shall be controlled and regulated by parking meters, installed and maintained by the International Bridges Director, and located upon the curb immediately adjacent to the individual parking spaces. The International Bridges Director shall designate the maximum parking time for each parking meter, basing this designation on the investigation above set forth.

B. The traffic engineer is hereby authorized to designate any portion or section of any drive, roadway or area within any public ground or lands owned or controlled by the city, as a public parking area within which parking shall be controlled by parking meters, whenever the International Bridges Director shall find and determine that the use of public property or any public building, structure or activity situated thereon or adjacent thereto will be benefited by the control of such parking, or access to such ground, buildings or activity will be made more readily available to a larger number of citizens or congested traffic and parking conditions will be thereby eliminated. In the areas so designated, the International Bridges Director shall designate the maximum parking time for each parking meter, basing his designation on the fact finding above set forth. Prior to making changes or designation the International Bridges Director will meet with representatives of the El Paso Downtown Management District in order to be able to fairly consider any impacts to affected downtown businesses and patrons. (Ord. 15157 § 2, 2002: Ord. 13062 § 9, 1997; Ord. 10399 § 1, 1991; Ord. 10046 § 2, 1990: Ord. 9497 § 1, 1988; prior code § 20-100)
(Ord. 17043, 12-23-2008)

12.56.020 Installation.

A. The International Bridges Director shall install or remove parking meters in the metered parking spaces established as provided by this chapter. Such meters shall be capable of being operated, either automatically or mechanically, upon the deposit therein of an appropriate coin, or coins, of United States currency, authorized tokens or a parking meter fee debit card or other approved payment method for the full period of time for which parking is lawfully permitted in any metered parking space.

B. A parking meter fee debit card means a card to be used as a substitute for coins to obtain time on a parking meter.

C. Reserved.

D. Each parking meter shall be so designed, constructed, installed and set that upon the expiration of the time period registered, by the deposit an approved payment method, it will indicate by an appropriate signal that the lawful parking meter period has expired, and during said period of

time and prior to the expiration thereof, will indicate the interval of time which remains of such period.

E. Each parking meter shall bear thereon a legend indicating the days and hours when the requirements to deposit an approved payment method therein shall apply, the value of the money to be deposited and the lawful period of time permitted for parking by meter actuation in the metered parking space in which such meter is located.

F. Parking meter fees shall apply in all areas between the hours of 8:00 a.m. and 6:00 p.m. of every day except on officially designated city holidays and Sundays. The International Bridges Director shall make recommendations to city council for exceptions to the days and times when parking meter fees shall apply.

Exceptions:

1. Parking meter fees shall not apply during the hours of the day when the fee is specifically exempted for special downtown events or events permitted with a special privilege license and event permit.

2. Reserved.

3. Parking meter fees shall not apply on Mills Avenue north side, between Campbell Street and Virginia Avenue on Tuesdays during scheduled city council meetings.

4. Parking meter fees shall apply within the uptown parking benefit district, bounded as described in Section 12.88.230 of the City Code, as amended, between the hours of 8:00 a.m. and 12:00 a.m. of every day except on officially designated city holidays and Sundays.

5. Without affecting the provisions of Section 12.56.020 F.3., parking meter fees shall not apply for the first hour during which a vehicle is parked at a parking meter on the north side of East Mills Street between North Campbell Street and North Virginia Avenue. If a vehicle is parked for more than one hour at that location, the established parking meter rates shall apply.

6. Parking meter fees shall not apply for the first hour during which a vehicle is parked at a parking meter on the north side of Texas Avenue between North Virginia Avenue and North Saint Vrain Street. If a vehicle is parked for more than one hour at that location, the established parking meter rates shall apply.

7. Parking meter fees shall apply on the portion of North Coldwell Street within "Zone A" of the downtown parking district for a 24-hour period of every day except on officially designated holidays.

8. Parking meter fees shall not apply for the first 15 minutes during which a vehicle is parked at a parking meter along Cincinnati Avenue between Mesa Street to the west and Stanton Street to the east. If a vehicle is parked for more than 15 minutes at that location, the established parking meter rates shall apply.

G. Parking at a space with a meter may be prohibited as indicated by street sign for designated days or hours of the day. Penalties for parking during the prohibited times shall apply regardless of whether the payment of the parking meter fee was made. (Ord. 15157 § 3, 2002: Prior code § 20-101)

(Ord. 17043, 12-23-2008; Ord. No. 17265, § 1, 1-12-2010; Ord. No. 17847, § 1, 8-7-2012, eff. 9-1-2012; Ord. No. 17982, § 1, 4-2-2013; Ord. No. 18066, § 1, 8-20-2013; Ord. No. 18122, § 1, 2-4-2014; Ord. No. 18228, § 1, 8-19-2014; Ord. No. 18411, § 1, 9-8-2015; Ord. No. 18528, § 1, 6-14-2016; Ord. No. 18565, § 1, 9-6-2016; Ord. No. 18763, § 1, 3-6-2018)

12.56.030 Parking space designation—Use.

A. The traffic engineer shall designate the parking space next to each parking meter for which such meter is to be used by appropriate markings upon the curb or pavement of the street. Parking spaces shall be not less than eighteen feet in length.

B. When double meters are installed on a single post, the front vehicle shall park with its rear bumper aligned with the meter post and the rear vehicle shall park with its front bumper aligned with such post so that the meter post is in the center between both vehicles. In such locations an

additional maneuvering area of eight feet painted with a white "X" shall be provided at the front and back of the double parking space to facilitate ingress and egress. The additional maneuvering area will not be provided where the parking space immediately joins a loading zone or yellow zone which can be used for ingress and egress.

C. The parking space at single meters shall also be eighteen feet in length with space for ingress and egress as outlined above.

D. No person shall park a vehicle in any such designated parking meter space during the restricted and regulated time applicable to the metered parking space in which such meter is located so that any part of such vehicle occupies more than one such space or protrudes beyond the markings designating such space, or so that any part of such vehicle occupies or protrudes into the maneuvering area at the front or back of such space, except that a vehicle which is of a size too large to be parked within a single designated parking meter space shall be permitted to occupy two adjoining parking meter spaces when coins, a parking meter fee debit card, or other approved payment method shall have been deposited in the parking meter for each space so occupied as is required in this chapter for the parking of other vehicles in such space.

E. A vehicle displaying special license plates issued by the Texas State Department of Highways and Public Transportation to former prisoners of war as provided in Section 502.257, Texas Transportation Code, is exempt from the payment of parking fees, including those collected through parking meters, charged by the city. This exemption does not permit parking at a space in excess of the time allowed or permit parking a vehicle at a place or time that parking is prohibited.

F. A vehicle displaying special license plates issued by the Texas State Department of Highways and Public Transportation to Pearl Harbor survivors as provided in Section 502.259, Texas Transportation Code, is exempt from the payment of private automobile parking fees at the El Paso International Airport if the vehicle is owned by a military veteran. This exemption does not permit parking at a space in excess of the time allowed or permit parking a vehicle at a place or time that parking is prohibited.

G. A vehicle displaying a city-issued placard issued to persons appointed to city boards, commissions and committees on the vehicle's dashboard is exempt from the payment of parking fees, including those collected through parking meters, charged by the City. This exemption applies only for parking meters located along East Mills Avenue's north side, between North Campbell Street and North Virginia Street during scheduled City board, commission and committee meetings. (Ord. 17043, 12-23-2008; Ord. 15157 § 4, 2002: Ord. 10990, 1992; Ord. 8175, 1984; prior code § 20-102) (Ord. No. 17690, § 20, 12-6-2011; Ord. No. 18484, § 1, 3-22-2016; Ord. No. 18763, § 2, 3-6-2018)

12.56.040 Operation—Time limits.

A. Except as provided in subsection G. of this section, it shall be a violation for a person to park a vehicle in any parking space upon a street alongside of and next to which a parking meter has been installed during the restricted and regulated time applicable to the metered parking space in which such meter is located unless a coin or coins of United States currency, a parking meter fee debit card, or other approved payment method of the appropriate denominations as provided in this chapter shall have been deposited therein, or shall have been previously deposited therein for an unexpired interval of time, and such meter has been placed in operation.

B. No person shall permit a vehicle within his control to be parked in any such parking meter space during the restricted and regulated time applicable to the metered parking space in which such meter is located when the parking meter for such space indicates by signal that the lawful parking time in such space has expired. This provision shall not apply to the act of parking or the necessary time which is required to deposit immediately thereafter a coin or coins, parking meter fee debit card, or other approved payment method in such meter.

C. Except as provided in subsections D., E., and G. of this section, it shall be a violation for a person to park a vehicle in any parking meter space for a consecutive period of time longer than that permitted in the metered parking space in which such meter is located irrespective of the number or amounts of the coins, parking meter fee debit card, or other approved payment method that are deposited for such meter. Each parking meter shall reflect the specific time limitation for that meter.

D. Placing of additional coins, parking meter fee debit card, or other approved payment method in parking meters located on city-owned properties outside the right-of-way of city streets beyond the prescribed maximum time limit shall be permitted.

E. Parking of a vehicle in any parking meter space for a consecutive period of time longer than that permitted in the metered parking space shall be permitted in the metered parking space when authorized through the grant of a special privilege by the city council or as otherwise authorized by ordinance or permit for use of the metered space pursuant to the requirements of the City Charter and any other applicable city ordinances.

F. When any vehicle is found parked in violation of any parking provision contained in this title, such fact shall be prima facie evidence that the person in whose name it is registered, is guilty of a violation of the parking provision contained in this title.

G. The provisions of this section shall not relieve any person from the duty to observe other and more restrictive provisions of this division and the state vehicle code prohibiting or limiting the stopping, standing or parking of vehicles in specified places or at specified times.

H. Except as provided in subsection 1. of this subsection, a vehicle may be parked at no charge in any parking meter space when the vehicle is being operated by or for the transportation of a person with a disability and there are special license plates issued under Texas Transportation Code Section 504.201 displayed on the vehicle or a valid disabled parking placard is placed on the rearview mirror of the vehicle's front windshield.

1. This subsection does not permit a vehicle to be parked at a time when or a place where parking is prohibited. (Ord. 15157 § 5, 2002: Ord. 10399 §§ 2, 3, 1991; prior code § 20-103)
(Ord. No. 17690, § 21, 12-6-2011; Ord. No. 18478, §§ 1—3, 3-22-2016; Ord. No. 18763, § 3, 3-6-2018)

12.56.050 Use of slugs unlawful.

It is unlawful for any person to deposit in any parking meter anything other than the required United States coin or coins or parking meter fee debit card. (Ord. 15157 § 6, 2002: Prior code § 20-104)
(Ord. No. 18763, § 4, 3-6-2018)

12.56.051 Use of altered United States coins unlawful.

It is unlawful for any person to deposit in any parking meter a United States coin which has had its size altered in any manner. (Ord. 9194, 1987)

12.56.060 Tampering with prohibited.

No person shall deface, injure, tamper with, open, or willfully break, destroy or impair the usefulness of any parking meter. (Ord. 15157 § 7, 2002: Prior code § 20-105)

12.56.070 Applicability of proceeds.

A. Revenue collected under this section from parking meters may be used for any lawful purpose.

B. The coins deposited in parking meters shall be collected by the duly authorized agents of the International Bridges Director. It shall be the duty of such persons so designated to collect the coins as deposited in the meters and deliver such coins in a sealed or locked container to a bank for deposit to the account of the city. The city comptroller shall receive an accounting of such deposits daily. (Ord. 15157 § 8, 2002: Prior code § 20-106)
(Ord. 17043, 12-23-2008; Ord. No. 18565, § 2, 9-6-2016; Ord. No. 18763, § 5, 3-6-2018; Ord. No. 019660, § 3, 8-13-2024)

12.56.080 Key—Custody—Duplicates.

The International Bridges Director shall have custody of all parking meter keys. He may issue such keys to any city employee whose duties require the use of such keys, and such employee shall return the keys to the International Bridges Director upon completion of the work for which their use was needed, or at any other time as directed by the International Bridges Director to return them. Any person who shall have in his custody or possession a parking meter key belonging to the city except as authorized hereunder, or who shall make or cause to be made any duplicate of a traffic meter key belonging to the city without being authorized by the International Bridges Director to do so, shall be deemed guilty of a misdemeanor as provided in Section 12.84.010 B. (Ord. 15157 § 9, 2002: Prior code § 20-107)
(Ord. 17043, 12-23-2008; Ord. No. 17690, § 22, 12-6-2011)

12.56.090 Parking meter rates.

The international bridges director is hereby authorized to establish parking meter fees upon any drive, roadway, city-owned or controlled parking lot or parking facility, or any other area where the parking space is subject to a parking meter. The following fees are hereby established for public parking at any parking meter that is governed by this section:

A. A rate to be established by the international bridges director in an amount set forth in the city's budget, which includes any applicable sales tax. The maximum duration of parking at any meter shall be established by the international bridges director and shall not exceed ten hours.

B. In establishing the foregoing rates, the International Bridges Director shall consider the cost of providing the service, the prevailing private market parking rates in the immediate vicinity of the meter, the needs of patrons of nearby businesses and other premises to have access to the use of meter parking, and shall also consider relevant traffic mobility and engineering issues as applicable.

C. The International Bridges Director is authorized to increase the rate established in subsection 12.56.090 A. to at least eighty cents and no more than one dollar in order to include the third party transaction actual cost for the provision of credit or debit card processing services for any time up to the first hour of each transaction for parking at parking meters. For any subsequent time beyond the first hour of the same transaction, the rate established in subsection 12.56.090 A. will apply. (Ord. 15157 § 10, 2002)
(Ord. 17043, 12-23-2008; Ord. No. 17690, § 23, 12-6-2011; Ord. No. 17847, § 2, 8-7-2012, eff. 9-1-2012; Ord. No. 18228, § 2, 8-19-2014)

12.56.100 Designation of authority.

Those duties of the traffic engineer under this article that do not require the exercise of professional engineering judgment shall be performed by the International Bridges Director. (Ord. 15157 § 11, 2002)
(Ord. 17043, 12-23-2008)

12.56.110 Proof of parking meter location and time limit.

When any person is charged with having committed an offense under this article, proof that a parking meter was located at the parking space in connection with which the offense was committed shall constitute prima facie evidence that the parking meter was installed and the space laid out by order of the traffic engineer, and that the location was designated by the traffic engineer and maximum parking time was designated by the International Bridges Director. (Ord. 15157 § 12, 2002)
(Ord. 17043, 12-23-2008)

Chapter 12.58

PARKING BENEFIT DISTRICTS

Sections:

12.58.010 Definitions.

12.58.020 Purpose of a parking benefit district.

12.58.030 Parking benefit district requirements.

12.58.040 Application to create or modify a district.

12.58.050 Pre-application requirements.

12.58.060 Application requirements.

12.58.070 Application review.

12.58.080 Parking benefit district advisory committee.

12.58.010 Definitions.

For the purposes of this chapter, the following terms, and phrases shall have the meaning given herein, unless more specifically defined within a specific section or paragraph of this chapter. When not inconsistent with the context, words used in the present tense include the future tense, words in the plural number include the singular number, and words in the singular number include the plural number. The words "shall" and "will" are mandatory and "may" is permissive. Words not defined shall be given their common and ordinary meanings.

"Administrative costs" means the costs incurred by the city for enforcing parking restrictions and operating and maintaining parking and street infrastructure.

"Business owner" means a person who holds title to or leases property for the purpose of operating or engaging in a trade, occupation, profession or other lawful commercial activity.

"City parking facility" means property that is owned or controlled by the city and that is used, wholly or partially, for off-street motor vehicle parking, including, but not limited to, a parking lot, a surface lot, or a parking garage.

"Curbside parking space" means an on-street parking space located adjacent to the curb on the public right-of-way, excluding those portions of the right-of-way where the parking of any motor vehicle is prohibited. Here, public right-of-way refers to the area on, below, or above a public roadway, highway, street, or utility easement in which the city has an interest.

"District" means parking benefit district.

"Improvements" means, but is not limited to, public amenities and beautification that enhance the quality of life and public safety in the parking benefit district, such as: increased security, sidewalk and pedestrian walkway improvements, street furniture, street maintenance, street lights, landscaping, parking studies, parking facilities, improvements that promote walking, cycling, and the use of public transportation, wayfinding, and costs associated with the administration of the district.

"Parking benefit district" means an area designated as such pursuant to this chapter in which a percentage of funds collected from paid curbside parking spaces or parking spaces in a city parking facility within the district are used to fund improvements within the district. Each particular parking benefit district is identified in Section 12.88.230 (Schedule XX) of this Code.

"Recognized neighborhood association" means a neighborhood association or civic association that is registered with the city pursuant to Chapter 2.102 of this Code.

"Record owner of real property" means the owner of real property as shown on the records of the tax appraisal district in the county in which the property is located.

"Resident" means the owner or tenant of residential property.

(Ord. No. 18761, § 1, 3-6-2018; Ord. No. 019770, § 1, 8-19-2025)

12.58.020 Purpose of a parking benefit district.

A parking benefit district is an area designated pursuant to this chapter in which a percentage of funds collected from paid curbside parking spaces

or parking spaces in a city parking facility within the district are used to fund improvements within the district.
(Ord. No. 18761, § 1, 3-6-2018)

12.58.030 Parking benefit district requirements.

A. A parking benefit district shall be created or dissolved by ordinance.

B. Any modification to the boundaries of a district shall be by ordinance.

C. Up to seventy-five percent of the funds from the paid curbside parking spaces within the district shall be set aside to pay for improvements and administrative costs within the district, with the remaining twenty-five percent reserved for parking meter maintenance, connectivity fees, and equipment upgrades. The ordinance creating the district shall specify the percentage of funds from the paid parking spaces to be allocated to improvements within the district.

D. Funds from the paid parking spaces may be used in conjunction with other city funds available for improvements within the district. Authorized improvements shall be determined by ordinance by the El Paso City Council.
(Ord. No. 18761, § 1, 3-6-2018; Ord. No. 019770, § 2, 8-19-2025)

12.58.040 Application to create or modify a district.

An application for the creation of a district may be initiated by:

A. A representative of a Recognized Neighborhood Association whose boundaries are completely or partially located within the proposed district;

B. A business owner, resident or property owner whose business, residence or property is located within the proposed district;

C. A city council representative or a majority of city council; or

D. The city manager or designee.
(Ord. No. 18761, § 1, 3-6-2018)

12.58.050 Pre-application requirements.

A. Prior to submittal of an application for the creation of a district or modification to the boundaries of an existing district, a pre-application meeting with the city manager or designee shall be required.

B. Following the pre-application meeting with the city manager or designee, a pre-application community meeting shall be required.

1. The applicant shall convene a community meeting before an application for the creation of district or modification to the boundaries of an existing district is submitted to the city manager or designee.

2. Prior to the community meeting, the applicant shall coordinate with the city manager or designee to send notification of the meeting by:

a. Electronic or regular mail to all recognized neighborhood associations whose boundaries are located:

i. Completely or partially within the proposed district; and

ii. Within 1,500 feet of the proposed district; and

b. Regular mail to all:

i. Record owners of real property located:

1. Completely or partially within the proposed district; and

2. Within 500 feet of the proposed district; and

ii. Physical property addresses that are located:

1. Completely or partially within the proposed district; and

2. Within 500 feet of the proposed district.

3. A notice provided under subsection B.2. shall include the community meeting time, date, location, subject matter, and applicant contact information.
(Ord. No. 18761, § 1, 3-6-2018)

12.58.060 Application requirements.

A. The city manager or designee shall establish fees and submittal requirements for an application for the creation of a district and for the

modification to the boundaries of an existing district. At a minimum, the application shall include:

1. The boundaries of the proposed district or modification to the boundaries of an existing district identified by streets;

2. An explanation of the need for the proposed district or modification to the boundaries of an existing district;

3. A visual representation of the proposed block faces that have paid parking spaces or that are proposed to have paid parking spaces;

4. Identification of other parking management tools that have been requested, if any;

5. Proposed improvements, in priority order, to be funded by parking space revenue;

6. A copy of the sign-in sheets from the pre-application community meeting; and

7. If a vote on the application occurred at the pre-application community meeting, the results of the vote.

B. The city manager or designee shall not accept an application unless the application is complete and the application fee has been paid.

(Ord. No. 18761, § 1, 3-6-2018; Ord. No. 019770, § 3, 8-19-2025)

12.58.070 Application review.

A. The city manager or designee shall review each application for the creation of a district or the modification to the boundaries of an existing district submitted under Section 12.58.060.

B. If the proposed district is located within the boundaries of a parking management district, a redevelopment authority, a tax increment reinvestment zone, or similar entity, the city manager or designee shall submit the application for comment by the entity.

C. The city council shall consider an ordinance for the creation of the proposed district or modification to the boundaries to an existing district after a complete application is filed and comment by applicable entities as referenced in subsection B. has been received.

(Ord. No. 18761, § 1, 3-6-2018)

12.58.080 Parking benefit district advisory committee.

A. If an advisory committee is created, it shall be created by ordinance at the time the parking benefit district is created or any time thereafter.

B. For each district, a parking benefit district advisory committee may be appointed to make recommendations to the city council on issues relating to the district, including: potential projects to be funded with revenue generated from the district and the timing and order of such projects. The El Paso City Council shall have final approval authority over all recommendations made by the committee.

C. If created, the committee shall adopt the uniform bylaws enumerated for all committees, in addition to any specific duties listed in the ordinance.

D. Members and chair. The committee shall consist of five regular members.

1. The members shall consist of business owners, property owners and residents whose business, property, or residence is located within the district or within 1,500 feet of the district; or a representative of a recognized neighborhood association registered pursuant to Chapter 2.102 of the El Paso City Code whose boundaries are completely or partially located within the proposed district or is within 1,500 feet of the proposed district; and are at least 18 years of age.

2. The members shall be appointed by the mayor and confirmed by the city council.

3. The mayor shall designate the committee chair from among the regular members of the committee.

4. At the first meeting of the committee, the regular members shall elect a vice chair who shall perform duties of the chair when the chair is absent or unable to perform such duties.

E. Meetings. The committee shall be limited to quarterly meetings.

(Ord. No. 18761, § 1, 3-6-2018; Ord. No. 019770, § 4, 8-19-2025)

Chapter 12.60

THROUGH STREETS, STOP AND YIELD INTERSECTIONS

Sections:

12.60.010 Designated.
12.60.020 Authority to designate stop intersections.
12.60.030 Stop signs—Authority to erect.
12.60.040 Word "stop" to be on signs.
12.60.050 Stop signs—required.
12.60.060 Emerging from alley, driveway or building.
12.60.070 Stopping when traffic obstructed.
12.60.080 Yield right-of-way signs.
12.60.090 Railroad crossing signals—Obedience to required.

12.60.010 Designated.

Those streets and parts of streets described in Schedule II, Section 12.88.020, are declared to be through streets for the purpose of this section. (Prior code § 20-59)

12.60.020 Authority to designate stop intersections.

The traffic engineer is authorized to determine and designate intersections where particular hazard exists upon other than through streets and to determine whether vehicles shall stop at one or more entrances to any such stop intersection, and shall erect a stop sign at every such place where a stop is required. (Prior code § 20-61)

12.60.030 Stop signs—Authority to erect.

Whenever any ordinance of this city designates and describes a through street it shall be the duty of the traffic engineer to place and maintain a stop sign on each and every street intersecting such through street or intersecting that portion thereof described and designated as such by any ordinance of this city unless traffic at any such intersection is controlled at all times by traffic-control signals; provided, however, at the intersection of two such through streets or at the intersection of a through street and a heavy traffic street not so designated, stop signs shall be erected at the approaches of either of the streets as may be determined by the traffic engineer upon the basis of an engineering and traffic study. (Prior code § 20-60)

12.60.040 Word "stop" to be on signs.

Every sign erected pursuant to this chapter and Chapters 12.44, 12.48, 12.52 and 12.56 shall bear the word "Stop" in letters not less than eight inches in height and such sign shall at nighttime be rendered luminous by steady or flashing internal illumination, or by a fixed floodlight projected on the face of the sign, or by efficient reflecting elements on the face of the sign. Every stop sign shall be located as near as practicable at the nearest line of the crosswalk on the near side of the intersection or, if none, at the nearest line of the roadway. However, nothing in this section shall be construed as to invalidate any existing stop sign heretofore erected on the public streets of the city, which are by this action hereby adopted as official stop signs. (Prior code § 20-62)

12.60.050 Stop signs—required.

When stop signs are erected as herein authorized at or near the entrance to any intersection, every driver of a vehicle and every motorman of a streetcar approaching a stop sign shall stop before entering the crosswalk on the near side of the intersection or in the event there is no crosswalk shall stop at a clearly marked stop line, but if none, then at the point nearest the intersecting roadway where the driver has a view of approaching traffic on the intersecting roadway before entering the intersection except when directed to proceed by a police officer or traffic-control signal. (Prior code § 20-63)

12.60.060 Emerging from alley, driveway or building.

The driver of a vehicle emerging from an alley,

driveway or building shall stop such vehicle immediately prior to driving onto a sidewalk or onto the sidewalk area extending across any alleyway, yielding the right-of-way to any pedestrian as may be necessary to avoid collision, and upon entering the roadway shall yield the right-of-way to all vehicles approaching on the roadway. (Prior code § 20-64)

12.60.070 Stopping when traffic obstructed.

No driver shall enter an intersection or a marked crosswalk unless there is sufficient space on the other side of the intersection or crosswalk to accommodate the vehicle he is operating without obstructing the passage of other vehicles or pedestrians, notwithstanding any traffic-control signal indication to proceed. (Prior code § 20-65)

12.60.080 Yield right-of-way signs.

A. The traffic engineer is authorized to erect "yield" signs at intersections where he finds that traffic conditions justify requiring drivers to yield the right-of-way to traffic on the intersecting street, but do not require a traffic light or stop sign.

B. Every such sign shall bear the word "Yield," either alone or with additional words indicating what traffic is to be yielded to, and shall be illuminated or reflectorized.

C. When yield signs are erected as herein provided at or near the entrance to any intersection, every driver of a vehicle upon approaching such sign shall yield the right-of-way to all vehicles approaching from the right or left on the intersecting street which are so close as to constitute an immediate hazard.

D. If a driver is involved in a collision at an intersection or interferes with the movement of other vehicles after driving past a yield sign, such collision or interference shall be deemed prima facie evidence of such driver's failure to yield the right-of-way. (Prior code § 20-67)

12.60.090 Railroad crossing signals—Obedience to required.

A. Whenever any person driving a vehicle approaches a railroad grade crossing under any of the circumstances stated in this section, the driver of such vehicle shall stop within fifty feet but not less than fifteen feet from the nearest rail of such railroad, and shall not proceed until he can do so safely.

The foregoing requirements shall apply when:

1. A clearly visible electric or mechanical signal device gives warning of the immediate approach of a railroad train;

2. A crossing gate is lowered or when a flagman gives or continues to give a signal of the approach or passage of a railroad train;

3. A railroad train approaching within approximately fifteen hundred feet of the highway crossing emits a signal audible from such distance and such railroad train, by reason of its speed or nearness to such crossing, is an immediate hazard;

4. An approaching railroad train is plainly visible and is in hazardous proximity to such crossing.

B. No person shall drive any vehicle through, around or under any crossing gate or barrier at a railroad grade crossing while such gate or barrier is closed or is being opened or closed. (Prior code § 20-66)

Chapter 12.64

TRAFFIC PROHIBITED ON CERTAIN STREETS

Sections:

12.64.010 Airway Boulevard.
12.64.020 Findley Avenue.
12.64.030 Controlled access highways.
12.64.040 Sahara Lane.
12.64.050 Seventh Avenue.

12.64.010 Airway Boulevard.

A. The department of transportation is authorized to construct a barrier across the alley located at the west end of Avalon Drive, at its intersection with Airway Boulevard, so as to prevent vehicular travel from the alley into Airway Boulevard, and to erect appropriate warning signs of the dead end.

B. When such barrier is erected no person shall operate a vehicle from the alley into Airway Boulevard or from Airway Boulevard into the alley.

C. Any person violating subsection B of this section shall be deemed guilty of a misdemeanor and punished as provided in Sections 1.08.010 through 1.08.030. (Ord. 13062 § 10, 1997; prior code § 20-176.4)
(Ord. No. 17394, § 10, 8-24-2010)

12.64.020 Findley Avenue.

A. No person shall operate any vehicle on that part of Findley Avenue lying between the northerly right-of-way line of Paisano Drive and the following described line lying across Findley Avenue:

A straight line, perpendicular to the northerly right-of-way line of Findley Avenue, and extending from a point in said northerly right-of-way line of Findley Avenue (which point is approximately 218 feet along said right-of-way line, westerly from the westerly right-of-way line of Stevens Street) to the northerly right-of-way line of Paisano Drive.

B. The department of transportation is authorized to erect a barrier against vehicular traffic along the above-described line across Findley Avenue, and the department of transportation is authorized to erect such sign or signs as may be appropriate to give notice of the dead end of Findley Avenue at such line.

C. Any person violating subsection A of this section shall be punished as provided in Section 12.84.010. (Ord 13062 § 11, 1997; prior code § 20-176.5)
(Ord. No. 17394, § 10, 8-24-2010, eff. 9-1-2010)

12.64.030 Controlled access highways.

No person shall operate any bicycle, motor scooter, motorcycle of less than five brake horsepower, or vehicle drawn by any animal, on any controlled access highway within the city; or go thereon as a pedestrian; or ride any animal thereon. (Ord. 8221, 1984: prior code § 20-176.1)

12.64.040 Sahara Lane.

A. No person shall operate any vehicle on that part of Sahara Lane lying between the Dyer Street-Loop 375 curbline and the following described line lying across Sahara Lane:

A straight line joining the southwest corner of Lot 15, Block 1, Sahara Subdivision, and a point in the south right-of-way line of Sahara Lane which is 35 feet westerly from the northeast corner of Lot 16, Block 2, Sahara Subdivision.

B. The department of transportation is authorized to erect a barrier against vehicular traffic along the above-described line lying across Sahara Lane, and the department of transportation is authorized to erect such warning sign or signs as may be appropriate to give notice of the dead end of Sahara Lane at such line.

C. Any person violating subsection A of this section shall be deemed guilty of a misdemeanor and punished as provided in Sections 1.08.010 through 1.08.030. (Ord. 13062 § 12, 1997; prior code § 20-176.2)
(Ord. No. 17394, § 10, 8-24-2010, eff. 9-1-2010)

12.64.050 Seventh Avenue.

A. The international boundary and water commission is authorized to construct suitable barricades and appropriate warning signs at the following locations, the design of such barricades and signs to be subject to approval by the traffic engineer:

1. Across the alley in Block E of the Santa Fe Addition, along the line at which part of the alley was vacated by Ordinance No. 3630, passed and approved October 6, 1966;

2. Across Seventh Avenue along each side of the area in which the Atchison, Topeka and Santa Fe Railway Company and the Rio Grande, El Paso and Santa Fe Railroad Company are authorized to operate across Seventh Avenue by Ordinance No. 3704, passed and approved March 16, 1967.

B. When the barricades at the locations described in subsection A1 of this section or either of such locations, are erected, such barricaded area shall be deemed closed to traffic; and it shall be unlawful to drive any vehicle, ride any animal, or go on foot from the open part of the alley into the vacated and barricaded part of the alley, or to drive any vehicle, ride any animal, or go on foot from the open part of Seventh Avenue into the barricaded railroad crossing, or to drive, ride or go on foot across the railroad crossing.

C. Any person violating subsection A2 of this section shall be deemed guilty of a misdemeanor and punished as provided in Section 1.08.010 through 1.08.030. (Ord. 13062 § 13, 1997; prior code § 20-176.3)

Chapter 12.68

VISIBILITY OBSTRUCTIONS

Sections:

12.68.010 Definitions.

12.68.020 Plants, objects, vehicles over three feet.

12.68.030 Trees and other objects—Trimming by lot owners required.

12.68.040 Notice of violation—Correction period—Complaint.

12.68.050 Trimming and removal by city.

12.68.060 Planting in arterial and local street medians.

12.68.070 Violation—Penalty.

12.68.010 Definitions.

For the purposes of this chapter the following terms shall have the meaning ascribed herein:

A. "Curbline" means the boundary of that portion of any street which is improved, designed or ordinarily used for vehicular travel.

B. "Object" means every sign, advertisement, container or display item of any type or form, portable or fixed, which is not authorized by state law or city ordinance. "Object" shall also include buildings and structures of all types, trailers not otherwise classified as vehicles, and any form of outside storage.

C. "Plants" means any hedge, bush, shrub, vine, palm or other vegetation except trees.

D. "Property line" means the boundary line of a parcel of land defined by metes and bounds in a recorded deed or by boundary lines on a recorded map, which line marks the division between the area for a public street and the property abutting upon the street.

E. "Street" means the entire width between the boundary lines of every way open to the use of the public for the purpose of traffic.

F. "Traffic" means the use of any street for the purpose of travel by pedestrians, riders of animals, vehicles and other conveyances. (Prior code § 20-157.1)

12.68.020 Plants, objects, vehicles over three feet.

A. Street Corners. It is unlawful for any person to place or maintain or cause to be placed or maintained, any plant, object or vehicle having a height greater than three feet above the level of the center line of the nearest abutting street on or in that area of a triangle formed by the intersecting property lines and a diagonal line joining the property line at points twenty feet from their intersection of any corner lot on which a front yard is required by Title 20 of this code.

B. Sidewalk Areas. It is unlawful for any person to place, maintain or cause to be placed or maintained any plant, object or vehicle having a height greater than three feet above the level of the center line of the nearest abutting street on or in that area which lies between the property lines of any corner lot and curb lines of any street in the city.

C. Fences. No person shall construct or reconstruct, or cause to be constructed or reconstructed, any fence or wall on a corner lot if the top of such fence or wall is more than three feet above the level of the centerline of the nearest abutting street, and such fence or wall is within a triangle formed by the intersecting property lines and a line joining the property lines at points twenty feet from their point of intersection. Provided, this subsection shall not apply to a retaining wall necessary for the support of the lot, nor to a wall of a building when the building legally extends into such triangle.

D. Variance Authorized by Traffic Engineer. Where special conditions exist, or where practical difficulties in the development and adequate use of land would result from the literal enforcement of the terms of this section, the traffic engineer is hereby authorized to issue a permit to vary the requirements herein set forth, provided that any such variances granted shall be in harmony with the general intent of this section, and consistent

with the public interest, safety and general welfare. Any substantial variances shall be in writing and shall be specifically set forth in the permit issued. (Prior code § 20-157.2)

12.68.030 Trees and other objects—Trimming by lot owners required.

A. Street Corners. It shall be the duty of every owner or occupant of any corner lot in the city to keep any and all trees trimmed and pruned of limbs, branches and foliage to a minimum clearance of ten feet above the street level at the nearest curb line in that area of a triangle formed by the intersecting property lines and a diagonal line joining the property lines at points twenty feet from their intersection on such corner lot.

B. Sidewalk Areas. It shall be the duty of every owner or occupant of any property in the city to keep any and all trees trimmed and pruned of limbs, branches and foliage to a minimum clearance of eight feet above the sidewalk level in that area between his property line and the curbline of any abutting street.

C. Keeping Free Passage in Sidewalk Area. It shall be unlawful for any person to place, maintain or permit, or cause to be placed or maintained, any tree, plant or object on or in the area between the property line of any lot and the curb line of any street abutting such lot in any way that obstructs the free passage and use of that area by the public.

D. Clearance Near Fire Hydrants. It is unlawful for any person to place, maintain or permit, or cause to be placed or maintained any tree, plant or object within five feet of any fire hydrant in the city.

E. Notwithstanding the provisions of any other section in this chapter it is unlawful for any person to place, plant or maintain any plant, tree, or other object in such a manner as to obstruct from view any traffic-control device. (Prior code § 20-157.3)

12.68.040 Notice of violation—Correction period—Complaint.

The traffic engineer shall have a written notice served upon the owner or occupant of any property upon which any violation of any section in this chapter exists to correct the condition which constitutes a violation herein within ten days after service of this notice. Service of the notice may be accomplished by sending same to the owner or occupant by certified mail or by personal service upon the owner or occupant. If such condition is not corrected by the end of such ten-day period, the code enforcement division or other designees of the city manager shall file a complaint in corporation court against such owner or occupant. (Prior code § 20-157.4)
(Ord. No. 17690, § 24, 12-6-2011)

12.68.050 Trimming and removal by city.

The traffic engineer is authorized to remove, or cause to be removed, any tree, plant or object found between the opposite curblines in any street in the city, and to trim branches, limbs or foliage of any tree or plant which overhangs or grows above the area which lies between the opposite curblines of any street to a minimum clearance of ten feet above the street level at the curbline and graduated toward the center line of the street to a clearance of twelve feet above such centerline. The traffic engineer is further authorized to trim or remove any tree or plant which obstructs any traffic control device in the city. (Prior code § 20-157.5)

12.68.060 Planting in arterial and local street medians.

A. Policy.

1. Landscaping in both arterial and local street medians is required in new medians. Landscaping in both existing arterial and local street medians is encouraged provided that the provisions specified in this chapter are adhered to.

2. Safety shall be the foremost consideration in the selection of and placement of landscaping materials in both arterial and local street medians.

3. The traffic engineer will publish planting guidelines for arterial and local street medians. Such guidelines will contain, but not be limited to, suggested plant materials, water harvesting and planting procedures.

4. Desert and drought tolerant landscaping is encouraged.

B. Criteria.

1. Subject to sight distance requirements, landscaped areas in arterial medians will be divided into three zones as specified in the city guidelines.

2. Pedestrian crossing areas shall be surfaced with hard paving suitable for foot and wheel-chair traffic.

3. Vegetation will not be allowed:

a. If the slope of the median is not conducive to irrigating and has a slope of five to one or greater.

b. In portions of the median where the minimum width of the median is five feet or less.

4. Landscaped areas in medians which will not contain vegetation shall:

a. Have a natural topping, including, but not limited to, granite, river rock or chat;

b. Have a weed barrier mat beneath the natural topping;

c. Have surfaces which shall be two inches below the top of the curbline for all areas within twenty-four inches of the back of the curbline. Swales and berms are permitted to allow natural water harvesting.

5. Landscaped areas in medians which will contain vegetation:

a. An irrigation system shall be installed if the minimum width of the median is five feet or more. The irrigation system shall be a low water demand system, with a subterranean system being the most desirable type of system. If sprayheads are installed, the sprayheads shall be designated so as not to spray into the adjacent roadways. The installation of the irrigation system shall be done by a registered irrigator or by any other person authorized under state law to perform the installation.

b. Landscaped surfaces shall be two inches below the top of the curbline for all areas within twenty-four inches of the back of the curbline. Swales and berms are permitted to allow natural water harvesting.

c. Trees and shrubs are permitted in medians if they are planted in locations which do not obstruct sight distance and where low-hanging tree or shrub branches do not hinder traffic movement.

d. All low lying plants must be kept pruned a minimum of two feet from the back of the curbline.

e. Plant wells shall be constructed by means of swales rather than through the use of berms.

C. Procedures.

1. The landscape plan and the irrigation plan, where applicable, as well as all specifications, shall conform to all applicable codes.

2. Landscaped areas in arterial and local street medians shall be subject to the approval of the traffic engineer.

3. Landscaping plans for new development shall be submitted with subdivision improvement plans.

4. For landscaping plans on existing medians, an application shall be submitted to the traffic engineer.

5. After approval of the plans by the traffic engineer, as provided for above, landscaping projects proposed by private groups or individuals shall be submitted to the city council for authorization to proceed with the project. Such authorization, if granted, shall be subject to a contract between the city and the private group or individual, setting forth the responsibilities of the group or individual. The proposed contract as approved by city council may provide that the traffic engineer will be authorized to approve additional landscaping projects proposed by the named private group or individual. (Ord. 13062 § 14, 1997; Ord. 13030, 1996: Ord. 8132, 1984: prior code § 20-157.5.1)

12.68.070 Violation—Penalty.

Any person violating this article shall be deemed guilty of a misdemeanor and punished as provided in Section 12.84.010. (Prior code § 20-157.6)

Chapter 12.72

RAILROAD TRAINS

Sections:

12.72.010 Headlight and signal requirements.

12.72.020 Operation within designated areas restricted.

12.72.030 Operation on approach of emergency vehicles.

12.72.010 Headlight and signal requirements.

No person shall cause, permit or suffer any railroad locomotive or train to run or move in the nighttime within the city without having a headlight, or cause, permit or suffer any railroad locomotive or train to run at any time without causing the proper signals to be given. (Prior code § 20-155)

12.72.020 Operation within designated areas restricted.

A. No person shall operate any railroad car or locomotive in or across Sunset Drive or Country Club Road, where the streets intersect the right-of-way of the Atchison, Topeka and Santa Fe Railroad, at a speed greater than thirty miles per hour.

B. No person shall operate any railroad car or locomotive on any part of the right-of-way of said railroad between Sunset Drive and Country Club Road at a speed greater than thirty miles per hour.

C. No person shall operate any railroad car or locomotive in or across Doniphan Drive on the spur track authorized by Ordinance No. 3439 at a speed greater than ten miles an hour.

D. No person shall operate any railroad car or locomotive in or across Doniphan Drive on said spur track between the hours of seven-thirty a.m. and eight-thirty a.m., nor between the hours of two-thirty p.m. and four p.m., on any week day, Monday through Friday.

E. Any person violating this section shall be deemed guilty of a misdemeanor and punished as provided in Sections 1.08.010 through 1.08.030. (Prior code § 20-148)

12.72.030 Operation on approach of emergency vehicles.

All persons in charge of railroad trains, shall immediately upon the sounding of a fire alarm, or upon the approach of an authorized emergency vehicle cause such trains to leave all street crossings clear, and to keep such street crossings clear of such trains until such emergency vehicle shall have cleared such crossings. (Prior code § 20-147)

Chapter 12.76

BICYCLES

Sections:

12.76.010 Applicability of traffic laws.

12.76.020 Applicability of traffic laws to pedal cars and unicycles.

12.76.030 Obedience to traffic-control devices.

12.76.040 Equipment.

12.76.050 Speed.

12.76.060 Carrying articles.

12.76.070 Riding on right side of street.

12.76.090 Leaving on sidewalk.

12.76.100 Riding abreast.

12.76.110 Number of persons riding.

12.76.120 Use of parking meters.

12.76.130 Taking without owner's permission.

12.76.140 Seizure of bicycles.

12.76.150 Purpose of seizure.

12.76.160 Effect of regulations.

12.76.170 Violation—Penalty.

12.76.010 Applicability of traffic laws.

Every person riding a bicycle upon a roadway shall be granted all of the rights and shall be subject to all of the duties applicable to the driver of a vehicle, except as to special regulations in this chapter and except as to those provisions of laws and ordinances which by their nature can have no application. (Prior code § 20-115)

12.76.020 Applicability of traffic laws to pedal cars and unicycles.

Every person riding in, upon, or transported by any device having one wheel and propelled by human power, or any device having three or more wheels and propelled by human power through a belt, chain or gears, is subject to all of the duties applicable to the driver of a vehicle or operator of a bicycle, except as to those provisions of laws and ordinances which by their nature can have no application. (Prior code § 20-115.2)

12.76.030 Obedience to traffic-control devices.

Any person operating a bicycle shall obey the instructions of official traffic-control signals, signs or other traffic-control devices applicable to vehicles, unless otherwise directed by a police officer. (Prior code § 20-116)

12.76.040 Equipment.

A. Every bicycle when in use at nighttime shall be equipped with a lamp on the front which shall emit a white light visible from a distance of at least five hundred feet to the front and with a red reflector on the rear of a type which shall be visible from all distances from fifty feet to three hundred feet to the rear when directly in front of lawful upper beams of headlamps on a motor vehicle. A lamp emitting a red light visible from a distance of five hundred feet to the rear may be used in lieu of the red reflector.

B. No bicycle shall be equipped with a red lamp or a red reflector which is visible from directly in front of the bicycle. No bicycle shall be equipped with, nor shall any person use upon a bicycle, any siren or whistle.

C. Every bicycle shall be equipped with a brake which will enable the operator to make the braked wheel skid on dry, level, clean pavement. (Prior code § 20-117)

12.76.050 Speed.

No person shall operate a bicycle at a greater rate of speed than that speed limit which is established for motor vehicles traveling on the same street or highway, and in no case shall any person operate a bicycle at a greater rate of speed than that at which a person of ordinary prudence would operate such bicycle under the same or similar circumstances. (Prior code § 20-118)

12.76.060 Carrying articles.

No person operating a bicycle shall carry any package, bundle or article which prevents the driver

from keeping at least one hand upon the handlebars. (Prior code § 20-118.1)

12.76.070 Riding on right side of street.

Every person operating a bicycle upon a street or highway shall ride as near to the right side of the roadway as practical, exercising due care when passing a standing vehicle or one proceeding in the same direction. (Prior code § 20-119)

12.76.090 Leaving on sidewalk.

No person shall leave a bicycle upon any public sidewalk unless such bicycle is securely supported in an erect position and so placed as not to obstruct the sidewalk or constitute a hazard to persons using the sidewalk; and no person shall leave a bicycle unattended in front of any theater. Any bicycle parked in violation of this section shall be deemed a nuisance, which may be abated by impounding the bicycle by the police department pending trial. (Prior code § 20-123)

12.76.100 Riding abreast.

A. Persons riding bicycles upon a street or highway shall not ride more than two abreast except on paths or parts of a roadway set aside for the exclusive use of bicycles.

B. Wherever a usable path for bicycles has been provided adjacent to a street or highway, bicycle riders shall use such path and shall not use the street or highway. (Prior code § 20-120)

12.76.110 Number of persons riding.

A. A person propelling a bicycle shall not ride other than upon or astride a permanent and regular seat attached thereto.

B. No bicycle shall be used to carry more persons at one time than the number for which it is designed and equipped. (Prior code § 20-121)

12.76.120 Use of parking meters.

Any person leaving a bicycle off the sidewalk and in a parking meter space shall pay the fee required of motor vehicles for the use of such space. (Prior code § 20-124)

12.76.130 Taking without owner's permission.

Any person taking a bicycle for the purpose of riding the same without the consent of the owner or person entitled to possession, thereof, under circumstances not constituting the crime of theft, shall be deemed guilty of a misdemeanor and punished as provided in Section 12.84.010. (Prior code § 20-125)

12.76.140 Seizure of bicycles.

Any bicycle found in the possession of any person who fails or refuses to show a right to be in possession thereof, may be seized by any police officer without warrant and delivered to the police department, to be held until the person lawfully entitled to possession of the same can be ascertained. The municipal court, in connection with any proceeding pending before it and within its jurisdiction, may make such orders as may be just with reference to the possession of any bicycle or bicycle part or accessory which may have been seized hereunder. (Prior code § 20-127)

12.76.150 Purpose of seizure.

The purpose of Section 12.76.140 is to prevent thefts of bicycles and bicycle parts and accessories and to facilitate the recovery of the same when lost or stolen, and such section shall be liberally construed to effectuate such purpose. (Prior code § 20-128)

12.76.160 Effect of regulations.

A. It is a misdemeanor for any person to do any act forbidden or fail to perform any act required in this chapter.

B. The parent of any child and the guardian of any ward shall not authorize or knowingly permit any such child or ward to violate any of the provisions of this chapter.

C. These regulations applicable to bicycles shall apply whenever a bicycle is operated upon any street or highway or upon any path set aside for the exclusive use of bicycles subject to those exceptions stated herein. (Prior code § 20-115.1)

12.76.170 Violation—Penalty.

Any person who shall operate or ride a bicycle on any street, alley, highway, public square, or public park in the city in violation of this chapter, or who shall otherwise violate this chapter within the city, shall be deemed guilty of a misdemeanor and punished as provided in this section. In lieu of imposing a fine the judge may, in his discretion, if the owner of the bicycle consents thereto, impound the bicycle for any definite period of time. If the owner of the bicycle is a minor the bicycle shall not be impounded without the consent of his parent, guardian, or person standing in loco parentis. (Prior code § 20-129)

Chapter 12.77

GOLF CARTS FOR HOLIDAY PARCEL DELIVERY

Sections:

12.77.010 Definitions.

12.77.020 Operation of a golf cart.

12.77.030 Liability.

12.77.040 Offense.

12.77.010 Definitions.

For purposes of this chapter, the following terms have these defined meanings.

A. "Authorized operator" means a person that uses a golf cart for the purpose of delivering parcels while in the course of employment with an entity whose primary business is the delivery of parcels.

B. "Golf cart" means a motor vehicle that has no less than three wheels, has a maximum speed between fifteen and twenty-five mph, and may be modified for parcel delivery.

C. "Motor vehicle" means a vehicle that is self-propelled.

D. "Public highway" means a road, street, way, thoroughfare, or bridge:

1. That is in the State;

2. That is for the use of vehicles;

3. That is not privately owned or controlled; and

4. Over which the State has legislative jurisdiction under its police power.

E. "Slow moving emblem" shall have the meaning assigned by Section 547.001(8) of the Texas Transportation Code and shall mean:

1. A triangular emblem that has a reflective surface designed to be clearly visible during daytime at a distance of at least five hundred feet; and

2. Is displayed in accordance with Section 547.703 of the Texas Transportation Code, requiring that such emblem be mounted base down on the rear of the motor vehicle at a height from three to five feet above the road surface.

F. "Winter holiday season" shall mean the period of time starting November first (1st) and ending January fifth (5th) of each year.

(Ord. No. 18099, § 1, 12-3-2013)

12.77.020 Operation of a golf cart.

During the winter holiday season, an authorized driver may operate a golf cart on a public highway, in the corporate boundaries of the City, for which the posted speed limit is not more than thirty-five miles per hour, if each of the following requirements are met:

A. A golf cart operated must have the following equipment:

1. Headlamps;

2. Taillamps;

3. Reflectors;

4. Parking brake;

5. Mirrors; and

B. A golf cart is required to display a slow-moving-vehicle emblem when it is operated on a public highway, as required by Sections 547.703(a) and (d) of the Texas Transportation Code; and

C. The authorized operator of a golf cart must:

1. Possess a valid driver's license that authorizes operation of a motor vehicle on public highways;

2. Carry evidence of financial responsibility consistent with Section 601.051 of the Texas Transportation Code, as amended, for operation of motor vehicles; and

3. Obey all state and local traffic laws.

(Ord. No. 18099, § 1, 12-3-2013)

12.77.030 Liability.

Nothing in this chapter shall be construed as an assumption of liability by the city for any damages (personal injury, property damage or otherwise) which may result from the operation of a golf cart authorized by this chapter. The authorized operator of a golf cart is responsible for the safe operation of a golf cart allowed under this chapter.

(Ord. No. 18099, § 1, 12-3-2013)

12.77.040 Offense.

Any person who operates a golf cart in violation of any provision or requirements of this chapter shall be deemed guilty of a misdemeanor and upon conviction shall be punished by a fine of not less than $50.00 or more than $500.00. Each violation of this chapter is a separate offense.
(Ord. No. 18099, § 1, 12-3-2013)

Chapter 12.78

INTERNATIONAL BRIDGES

Sections:

12.78.010 Tolls for international bridges.

12.78.020 Toll collection for pickup trucks or any other vehicle.

12.78.030 No fee days.

12.78.010 Tolls for international bridges.

The following tolls shall apply to southbound traffic on Santa Fe (Paso del Norte) International Bridge, Stanton Street (Friendship) International Bridge and Zaragoza International Bridges, in the amounts identified in the adopted budget resolution for the current fiscal year or by other appropriately adopted resolution by the city council:

A. Pedestrians, three years and older;

B. Bicycles;

C. Motorcycles;

D. Automobiles, pickup trucks (up to one-ton carrying capacity), panel trucks, vans, recreational trailers, in the amount set per vehicle;

E. Commercial trucks, buses (a motor vehicle used to transport persons and designed to accommodate more than ten passengers, including the operator), motor homes, tractors, commercial towed trailers, in the amount set per axle.

F. Currency exchange rate adjustment. Notwithstanding anything in this section to the contrary, the rate of exchange of all bridge tolls shall be adjusted monthly to the next highest, whole denomination of currency of the country of Mexico, the peso, so as to equal, at the minimum: for subsection A. of this section, the amount set per person; subsection B. of this section, the amount set per bicycle; subsection C. of this section, the amount set per motorcycle; subsection D. of this section, the amount set per vehicle; and subsection E. of this section, the amount set per axle.

G. Currency exchange. On a regular basis, but not less than weekly, the total foreign currency held by the City of El Paso in its international bridges department shall be exchanged for United States currency with one of the exchange businesses in El Paso at the best available rate based on bids received. (Ord. 16970 § 1, 2008; Ord. 15656 § 1, 2003: Ord. 13791 § 1, 1998; Ord. 12108, 1994: Ord. 11166 § 1, 1992; Ord. 10821 § 1, 1991: Ord. 10193 § 3, 1990)

(Ord. 17176, § 1, 8-18-2009; Ord. No. 019546, § 1, 10-10-2023)

12.78.020 Toll collection for pickup trucks or any other vehicle.

A. The driver of a pickup truck with a maximum carrying capacity of one ton shall pay the pickup truck toll.

B. The driver of a pickup truck with a maximum carrying capacity exceeding one ton shall pay the commercial truck toll.

C. The driver of any pickup truck, or any other vehicle using the Zaragoza Commercial Bridge shall pay the commercial truck toll. The driver of any pickup truck, or any other vehicle rejected by Mexico shall not be entitled to a refund of the toll that was paid. (Ord. 10821 § 2, 1991; Ord. 10193 § 5, 1990)

(Ord. No. 019546, § 2, 10-10-2023)

12.78.030 No fee days.

A. Fees. Fees for use of the international bridges shall be in the amounts set forth in the budget resolution of the city council or as established by the director, except that the city council is authorizing up to seven no fee days per calendar year for pedestrians with the specific dates to be determined by the director of the international bridges department after consultation with the El Paso Downtown Management District. Such determination by the director shall comply with the following guidelines and criteria:

1. To promote increased attendance at events, programs and activities in the city;

2. To honor recognized holidays;

3. To enhance commercial opportunities; or

4. When otherwise appropriate to create good will in the community.

(Ord. 17176, § 2, 8-18-2009)

Chapter 12.80

MISCELLANEOUS TRAFFIC REGULATIONS

Sections:

12.80.010 Special restrictions on lamps.

12.80.020 Dim lights required.

12.80.030 Coasters, roller skates and similar devices—Use restrictions.

12.80.040 Following fire apparatus.

12.80.050 Crossing fire hose.

12.80.060 Processions—Driving through.

12.80.070 Funeral processions—Identification.

12.80.080 Funeral processions—Driving in.

12.80.090 Driving on sidewalks.

12.80.100 Backing—Limitations.

12.80.110 Riding on motorcycle.

12.80.120 Clinging to vehicles.

12.80.130 Controlled-access roadways—Use of exits and entrances.

12.80.140 Opening vehicle doors into streets.

12.80.150 Storing vehicles in streets.

12.80.160 Negligent collision.

12.80.170 Signalling change of course of direction or stopping.

12.80.180 Boarding or alighting while streetcar or vehicle in motion.

12.80.190 Unlawful riding.

12.80.200 Blocking streets by streetcars and railroad trains.

12.80.210 Streetcar stops.

12.80.220 Vulnerable road users.

12.80.230 Removing or defacing signs.

12.80.010 Special restrictions on lamps.

Unless otherwise provided by law, the color of lamps, illumination devices and reflectors upon any vehicle, equipment or any device moved by human power upon the streets or highways within the city limits shall be as follows:

A. Front clearance lamps, identification lamps and those marker lamps and reflectors mounted on the front or on the side near the front of a vehicle shall display or reflect an amber color. No lamp, illumination device, or reflector, whether lighted or unlighted, which is visible from the front of any vehicle, equipment or device moved by human power shall be red in color unless expressly authorized or required by law.

B. Rear clearance lamps, identification lamps and those marker lamps and reflectors mounted on the rear or the sides near the rear of a vehicle shall display or reflect a red color.

C. All illumination devices and reflectors mounted on the rear of any vehicle shall display or reflect a red color, except the stop light or other signal device, which may be red, amber, or yellow, and except that light illuminating the license plate which shall be white and the light emitted by a backup lamp which shall be white or amber.

D. Subsections A, B and C of this section apply to the color of the lamp whether lighted or unlighted, and to any reflector exhibiting or reflecting perceptible light, except the stop light or other signal device, and the turn signal lamp visible to the rear which may be white, when unlighted. (Prior code § 20-16.1)

12.80.020 Dim lights required.

A. No person shall drive a motor vehicle on any street or alley in the city with a light or lights of such intensity and direction as to impair the vision for driving purposes of another person driving a vehicle.

B. When a motor vehicle is equipped with a device for raising and lowering or for dimming the headlight beams, no person shall drive such vehicle on any street or alley in the city without lowering or dimming the headlight beams. (Prior code § 20-176)

12.80.030 Coasters, roller skates and similar devices—Use restrictions.

A. No person upon roller skates, skateboard, or riding in or by means of any coaster, toy vehicle, razor scooters, or similar roller devices, shall go upon any roadway, except while crossing a street on a crosswalk, subject to the duties applicable to pedestrians, and in compliance with all laws that apply to pedestrians.

B. Any person may ride any roller device including, but not limited to, the sidewalks, public rights-of-way, parking lots, walkways and ramps, provided that such device is ridden when used to provide transportation and with due regard to the safety of pedestrians. When in close proximity to pedestrians, riders must yield to or stop for pedestrians, and walk and carry, or otherwise maintain possession of, the devices without using them for transportation purposes.

C. Riders are specifically prohibited from riding, or attempting to ride, the devices on any structure or surface not intended for pedestrian or vehicular traffic. Riders of said devices are prohibited from riding or attempting to ride on handrails, guardrails, planters, decorative structures, fountains, walls, windows, buildings, or any other structure or surface that is not intended for pedestrian or vehicular traffic.

D. This section shall not apply to any person using roller skates, skateboards, or riding in or by means of any coaster, toy vehicle, or similar device with the permission of the property owner.

E. Any person violating any provision of this section shall be deemed guilty of a Class C misdemeanor and shall be punished in accordance with Chapter 1.08 of the Code. (Prior code § 20-18; Ord. 13787 § 1, 1998; Ord. No. 18567, § 1, 9-6-2016)

12.80.040 Following fire apparatus.

The driver of any vehicle other than one on official business shall not follow any fire apparatus traveling in response to a fire alarm closer than five hundred feet or drive into or park such vehicle within the block where fire apparatus has stopped in answer to a fire alarm. (Prior code § 20-158)

12.80.050 Crossing fire hose.

No streetcar or vehicle shall be driven over any unprotected hose of a fire department when laid down on any street, private driveway or streetcar track, to be used at any fire or alarm of fire, without the consent of the fire department official in command, or duly authorized police officer. (Prior code 20-159)

12.80.060 Processions—Driving through.

No driver of a vehicle or motorman of a streetcar shall drive between the vehicles comprising a funeral or other authorized procession while such processions are in motion and when such vehicles are conspicuously designated as required in this title. This provision shall not apply at intersections where traffic is controlled by traffic-control signals or police officers. (Prior code § 20-160)

12.80.070 Funeral processions—Identification.

Every vehicle in a funeral procession shall be identified by displaying lighted headlamps throughout the entire period of such procession. (Prior code § 20-161)

12.80.080 Funeral processions—Driving in.

Each driver in a funeral or other procession shall drive as near to the right-hand edge of the roadway as practical and shall follow the vehicle ahead as close as is practical and safe. (Prior code § 20-162)

12.80.090 Driving on sidewalks.

The driver of a vehicle shall not drive within any sidewalk area except at a permanent or temporary driveway. This prohibition does not apply to the driving of a motor assisted scooter as defined in this Title. (Prior code § 20-163)
(Ord. No. 18898, § 2, 1-8-2019)

12.80.100 Backing—Limitations.

The driver of a vehicle shall not back the same unless such movement can be made with reason-

able safety and without interfering with other traffic. (Prior code § 20-164)

12.80.110 Riding on motorcycle.

A person operating a motorcycle shall ride only upon the permanent and regular seat attached thereto, and such operator shall not carry any other person nor shall any other person ride on a motorcycle unless such motorcycle is designed to carry more than one person, in which event a passenger may ride upon the permanent and regular seat if designed for two persons, or upon another seat firmly attached to the rear or side of the operator. (Prior code § 20-165)

12.80.120 Clinging to vehicles.

No person riding upon any bicycle, coaster, roller skates, sled or toy vehicle shall attach the same or himself to any streetcar or vehicle upon a roadway. (Prior code § 20-166)

12.80.130 Controlled-access roadways—Use of exits and entrances.

No person shall drive a vehicle onto or from any controlled access roadway except at such entrances and exits as are established by the city. (Prior code § 20-167)

12.80.140 Opening vehicle doors into streets.

It is unlawful for any person to open the door of any vehicle so that the door projects into the street, unless the same can be done in safety and without interfering with traffic thereon. (Prior code § 20-168)

12.80.150 Storing vehicles in streets.

A. It is unlawful for the person in charge of any vehicle to store such vehicle upon the streets, alleys or other rights-of-way of the city. A vehicle is presumed stored if it has remained parked upon any street, alley or other right-of-way at or near the same location for a continuous period of time in excess of five days. Members of the police department and authorized employees operating city towing equipment are authorized to remove and impound any vehicle stored in violation of this section.

B. When a vehicle is removed or impounded under the authority of this section, the vehicle shall be removed or impounded in accordance with the provisions of Section 12.08.220 of this code. A person whose vehicle has been removed or impounded under authority of this section may request a hearing as provided in Section 12.08.220 of this code. (Ord. 12330 § 1, 1995: Ord 8438, 1985: prior code § 20-169)

12.80.160 Negligent collision.

A. No person while driving or in charge of any vehicle shall wilfully or with negligence cause or permit such vehicle to come into collision with any other vehicle or with any animal, person or property on any public street.

B. Proof of a collision shall be prima facie evidence of the driver's negligence, and proof of no intent to injure shall be no defense to a charge of negligent collision. (Prior code § 20-170)

12.80.170 Signalling change of course of direction or stopping.

The driver of any vehicle upon any public highway before turning, stopping or changing course of direction of such vehicle shall give a plainly visible signal of his intentions so to turn, stop or change such course, and shall not then so turn, stop, or change such course unless such movement can be made in safety. The change of course mentioned in this section shall include any driver leaving the curb from a parked position. (Prior code § 20-171)

12.80.180 Boarding or alighting while streetcar or vehicle in motion.

No person shall board or alight from any streetcar or vehicle while such streetcar or vehicle is in motion. (Prior code § 20-172)

12.80.190 Unlawful riding.

No person shall ride on any streetcar or vehicle upon any portion thereof not designated or

intended for the use of passengers. This provision shall not apply to any employee engaged in the necessary discharge of a duty, or to persons riding within truck bodies in space intended for merchandise. (Prior code § 20-173)

12.80.200 Blocking streets by streetcars and railroad trains.

A. It is unlawful for the operator of any railroad train or streetcar to operate or to direct the operation of the same in such a manner as to prevent the use of any street for purposes of travel for a period of time longer than five minutes, except that this provision shall not apply to trains or cars in motion other than those engaged in switching.

B. It is unlawful for any streetcar to stop within an intersection or on a crosswalk for the purpose of receiving or discharging passengers. (Prior code § 20-174)

12.80.210 Streetcar stops.

A. Authority is vested in the traffic engineer to designate streetcar stops at such locations and in such number as may be necessary for public safety and convenience. Every such streetcar stop shall be designated by appropriate signs.

B. The operator of a streetcar shall not stop such streetcar at any place for the purpose of taking on or discharging passengers other than at a streetcar stop so designated as provided herein, except in case of emergency.

C. No person shall stop, stand or park a vehicle at an authorized streetcar stop so designated as provided herein, or between the right curb and any such stop, except that the operator of a passenger vehicle may temporarily stop thereat for the purpose of and while actually engaged in the discharge of passengers or the pickup of passengers then in readiness at the curb. (Prior code § 20-175)

12.80.220 Vulnerable road users.

A. In this section, a vulnerable road user means:

1. A pedestrian, including a runner, physically disabled person, highway construction and maintenance worker, tow truck operator, utility worker, other worker with legitimate business in or near the road or right-of-way, or stranded motorist or passenger;

2. A person on horseback; or

3. A person operating equipment other than a motor vehicle, including, but not limited to, a bicycle, handcycle, horse-driven conveyance, or unprotected farm equipment.

B. An operator of a motor vehicle passing a vulnerable road user operating on a highway or street shall:

1. Vacate the lane in which the vulnerable road user is located if the highway or street has two or more marked lanes running in the same direction; or

2. Pass the vulnerable road user at a safe distance.

C. For the purpose of subsection B.2., when road conditions allow, safe distance is at least:

1. Three feet if the operator's vehicle is a passenger car or light truck; or

2. Six feet if the operator's vehicle is a truck, other than a light truck, or a commercial motor vehicle as defined by Texas Transportation Code Section 522.003.

D. An operator of a motor vehicle that is making a left turn at an intersection, including an intersection with an alley or private road or driveway, shall yield the right-of-way to a vulnerable road user who is approaching from the opposite direction and is in the intersection, or is in such proximity to the intersection as to be an immediate hazard.

E. An operator of a motor vehicle may not overtake a vulnerable road user traveling in the same direction and subsequently make a right-hand turn in front of the vulnerable road user unless the operator is safely clear of the vulnerable road user, taking into account the speed at which the vulnerable road user is traveling and the braking requirements of the motor vehicle making the right-hand turn.

F. An operator of a motor vehicle may not maneuver the vehicle in a manner that:

1. Is intended to cause intimidation or harassment to a vulnerable road user; or

2. Threatens a vulnerable road user.

G. An operator of a motor vehicle shall exercise due care to avoid colliding with any vulnerable road user on a roadway or in an intersection of roadways.

H. It is an affirmative defense to prosecution under this section that at the time of the offense the vulnerable road user was acting in violation of the law.

(Ord. No. 17466, § 1, 12-7-2010)

12.80.230 Removing or defacing signs.

A. It shall be unlawful to remove or deface any sign erected or installed for the regulation of stopping, standing and parking as are required or authorized under Titles 12 and 14 of this Code.

B. It shall be unlawful to move, alter or relocate any portable sign or parking meter cover placed in accordance with Titles 12 and 14 of this Code.

C. This section shall not apply to the city manager and his designees in the performance of their official duties to install, remove and repair signs, and to persons authorized by the city to install or remove parking meter covers.

(Ord. No. 17690, § 25, 12-6-2011)

Chapter 12.84

PENALTY

Sections:

12.84.010 Violation—Penalty.

12.84.010 Violation—Penalty.

A. A violation of a provision of Chapters 12.44, except for Sections 12.44.260 and 12.44.270, 12.48, 12.52 and Sections 12.56.030 and 12.56.040 of this Code governing the stopping, standing or parking of a vehicle, or a violation of any stopping, standing or parking designation, regulation or restriction established as authorized by said chapters, is a civil offense; provided that the penalties for a violation of Section 12.44.280 shall be as set forth in subsection 12.44.280 R. Such civil violations are subject to the administrative adjudication process as provided in Chapter 12.85 of this Code.

B. Any person violating any provision of this title, other than a provision of Chapters 12.44, except for Sections 12.44.260 and 12.44.270, 12.48, 12.52 and Sections 12.56.030 and 12.56.040 of this Code governing the stopping, standing or parking of a vehicle, shall be deemed guilty of a misdemeanor and be punished by a fine not exceeding five hundred dollars; provided, if any provision of this title is substantially the same as one set forth in any statute of this state, and a different penalty therefor is provided by state law, the penalty provided by this title for violation of such provision shall be the same as that provided by the state law; and provided further that the penalties for a violation of Section 12.44.280 shall be as set forth in subsection 12.44.280 R.

C. For violations under this title that are of a continuing nature, each day that the violation shall continue shall constitute a separate offense, except that continuing violations of Section 12.56.040 relating to time limits for parking in metered parking spaces, and continuing violations of Section 12.52.050 relating to time limits for parking as established by code schedule when signs are erected, shall constitute a separate offense for each segment of maximum parking time as allowed and stated on the meter or sign. (Ord. 11051 (part), 1992; Ord. 10971 § 7, 1992; Ord. 9430 § 6, 1988: prior code § 20-26)
(Ord. No. 17690, § 26, 12-6-2011)

Chapter 12.85

PARKING VIOLATIONS BUREAU

Sections:

12.85.010 Parking violations division established.
12.85.020 Hearing officers.
12.85.030 Parking citations.
12.85.040 Presumption of ownership.
12.85.050 Hearings.
12.85.055 Defense.
12.85.060 Appeal.
12.85.065 Final judgments.
12.85.070 Enforcement.
12.85.080 Procedures for immobilization or impoundment.
12.85.090 Boot removal.
12.85.100 Boot hearing.
12.85.110 Fines and fees.
12.85.120 Certain conduct unlawful.

12.85.010 Parking violations division established.

There is created a parking violations division within the El Paso Municipal Courts of Record, hereinafter referred to as the municipal courts, which shall have original jurisdiction over cases involving violations of city ordinances and regulations and restrictions established pursuant thereto relating to the stopping, standing or parking of vehicles as contained in Titles 12 and 14 of this Code. The administrative adjudication of violations under this chapter is civil in nature. (Ord. 11051 (part), 1992; Ord. 10971 § 1 (part), 1992)
(Ord. No. 17690, § 27, 12-6-2011; Ord. No. 019532, § 1, 8-15-2023)

12.85.020 Hearing officers.

A. The parking violations division shall have one or more municipal associate judges who are employed in the position of municipal court hearing officer or are otherwise assigned the duties and responsibilities of such position. A substitute associate municipal judge may substitute as a hearing officer when needed.

B. Municipal associate judges shall have the authority to administer oaths and to issue orders compelling the attendance of witnesses and the production of documents.

C. An order compelling the attendance of witnesses or the production of documents may be enforced by the municipal courts. (Ord. 16872 § 1, 2008; Ord. 11051 (part), 1992; Ord. 10971 § 1 (part), 1992)
(Ord. No. 019532, § 2, 8-15-2023; Ord. No. 019644, § 1, 6-11-2024)

12.85.030 Parking citations.

A. The administrative adjudication process for parking, standing and stopping violations shall be initiated by the issuance of a parking citation which may be issued by a peace officer or other authorized parking enforcement agent.

B. Authorized parking enforcement agents are designated as follows:

1. The city employees designated by the city manager or the chief of police to include but not be limited to the city's parking and traffic controllers, parking enforcement controllers, and the employees assigned to the code enforcement division.

2. Security guards employed under contract with the city to provide security at the El Paso Zoo only for stopping, standing and parking violations that occur on:

a. The premises and perimeter of the El Paso Zoo, including parking lots within the boundary of East Paisano Street, Gateway North Boulevard and Franklin Canal, and the parking lot accessed from Dunne Street;

b. North side of East Paisano Street from Washington Street to Gateway North Boulevard; and

c. East side of Gateway North Boulevard from East Paisano Street to Franklin Canal.

3. The head of security and his security supervisors of University Medical Center only for

stopping, standing and parking violations that occur on the premises of University Medical Center.

4. Disabled-parking enforcement volunteers as provided in Section 12.08.230 of this Code.

5. The director of the convention and visitor's division (civic center) and his designees only for stopping, standing and parking violations that occur on the parking lots and facilities located at the Civic Center Plaza.

6. The director of the mass transit department and his designees, to include but not be limited to security guards employed under contract with the city, only for stopping, standing and parking violations that occur on the parking lots and facilities operated by the mass transit department, and for violations of Sections 12.48.050 and 12.48.060 of this Code.

7. The commissioned law enforcement personnel hired by independent school districts that have schools within the El Paso city limit, who agree to abide by the requirements of this chapter and any other relevant obligations through an interlocal agreement. Citations must be issued within the city limit.

C. The citation shall provide that the person charged with a parking, standing or stopping offense shall have the right to an instanter hearing for the purpose of determining the issue of liability for the charged offense. Such right to a hearing shall be exercised by appearing in person before a municipal associate judge within fourteen days from the date of the citation on a day of the week established by the municipal court for the routine operation of the courts. During such times that Monday through Thursday are established as the court's operation days and the court is open, hearings will be held between the hours of 7:30 a.m. to 12:45 p.m. and 2:00 p.m. to 5:45 p.m. During such times that Monday through Friday are established as the court's operation days and the court is open, hearings will be held between the hours of 8:30 a.m. to 12:45 p.m. and 2:00 p.m. to 5:15 p.m. The municipal clerk shall post the schedule of days of operation at the court and on the city's website.

D. The original or any copy of the citation is a record kept in the ordinary course of business in the city and is rebuttable proof of the facts it contains. (Ord. 11821 § 1, 1994; Ord. 11051 (part), 1992; Ord. 10971 § 1 (part), 1992)
(Ord. No. 17690, § 28, 12-6-2011; Ord. No. 019532, § 3, 8-15-2023; Ord. No. 019644, § 2, 6-11-2024)

12.85.040 Presumption of ownership.

A. It is presumed that the registered owner of the motor vehicle that is the subject of the administrative hearing is the person who parked or stopped the vehicle at the time and place of the offense charged.

B. The Texas Department of Transportation computer-generated record of the registered vehicle is prima facie evidence of its contents in any administrative adjudication hearing under this chapter. (Ord. 11051 (part), 1992; Ord. 10971 § 1 (part), 1992)

12.85.050 Hearings.

A. At the hearing before the municipal associate judge, the defendant may either admit, admit with explanation, or deny the alleged infraction.

B. The issuing peace officer or other authorized parking enforcement agent shall not be required to attend the hearing.

C. It is not required that the city be represented by counsel at the hearing; provided, however, that if the defendant is represented by counsel at the hearing, the municipal associate judge shall notify the municipal court clerk, who shall have the right to arrange for the city to be represented by an assistant city attorney.

D. Neither a complaint nor any other charging instrument is required. The municipal associate judge shall examine the contents of the citation and the evidence related to ownership of the vehicle in question, and shall hear and review the testimony and evidence presented by the defendant. The formal rule of evidence do not apply to a hearing under this section, and the municipal associate judge shall make his decision based upon a preponderance of the evidence presented at the

hearing, after giving due weight to all presumptions and prima facie evidence established by this chapter or other applicable law.

E. At the conclusion of the hearing, the municipal associate judge shall issue an order stating whether or not the person charged is liable for violation of the parking or stopping ordinance and the amount of the fine, costs or fees assessed against him. The order shall be filed with the municipal court clerk. All such orders shall be kept in a separate index or file by the municipal court clerk using appropriate data processing techniques.

F. Failure of a person charged with the offense to appear at a hearing within the aforesaid fourteen-day period shall be considered an admission of liability for the charged offense.

G. In accordance with Article 102.014(b), Texas Code of Criminal Procedure, a municipal associate judge shall impose a court cost of two dollars on each parking violation in which a fine, costs or fee is paid or assessed. This court cost may be enforced in the manner set forth in Section 12.85.070. (Ord. 11051 (part), 1992; Ord. 10971 § 1 (part), 1992)
(Ord. No. 019644, § 3, 6-11-2024)

12.85.055 Defense.

It is a defense to a stopping and parking violation if the registered owner of the vehicle (that is the subject of a administrative hearing) establishes by a preponderance of the evidence that an unauthorized person stopped or parked said vehicle at the time and place of the offense charged. (Ord. 11821 § 2, 1994)

12.85.060 Appeal.

A. A person determined by the municipal associate judge to be in violation of a parking or stopping ordinance may appeal this determination to the El Paso Municipal Court of Appeals.

B. The appeal is initiated by filing, not later than the thirtieth day after the filing of the municipal associate judge's order, a petition with the clerk of the court along with payment of the costs required by law for the municipal court. Additionally, a filing fee in the amount of ten dollars must be paid at the time the petition is filed. This ten-dollar filing fee will be refunded in the event the municipal associate judge's order is reversed by the El Paso Municipal Court of Appeals.

C. After filing a petition of appeal, the municipal court clerk shall schedule a hearing and notify all parties of the date, time and place of the hearing.

D. The appeal hearing must be before the El Paso Municipal Court of Appeals and is a civil proceeding for the purpose of affirming or reversing the municipal associate judge's order based upon a review of a record of the evidence presented to the municipal associate judge. The El Paso Municipal Court of Appeals shall affirm the municipal associate judge's order if there is substantial evidence in the record to support the order. The decision of the El Paso Municipal Court of Appeals is final.

E. The filing of an appeal under this section does not stay the enforcement and collection of the judgment unless the person who files the appeal posts a cash bond before filing notice of appeal with the municipal court clerk. The cash bond shall be in the amount of all fines, costs and fees assessed by the municipal associate judge. (Ord. 11821 § 3, 1994; Ord. 11051 (part), 1992; Ord. 10971 § 1 (part), 1992)
(Ord. No. 019644, § 4, 6-11-2024)

12.85.065 Final judgments.

A. Any of the following shall constitute a final judgment for purposes of this chapter:

1. A citation for a violation regarding the stopping, standing or parking of a vehicle as set forth in Section 12.84.010 A. of this Code, upon the passage of thirty days from the time of issuance of the citation, without the person charged having exercised the right to a hearing under Section 12.85.030 C. and without said fine having been paid;

2. A municipal associate judge's order finding a person to be in violation of a provision of

this code regarding the stopping, standing or parking of a vehicle as set forth in Section 12.84.010.A of this Code, upon the passage of thirty days from the filing of the municipal associate judge's order, without that person filing a petition of appeal together with all required costs and fees and without said fine having been paid; or

3. The decision of the municipal judge pursuant to Section 12.85.060 D., without said fine having been paid.

B. A final judgment under this section shall also constitute an order or constitute the imposition of a fine, cost or fee within the meaning of Section 682.010 of the Texas Transportation Code, and shall be additionally be enforceable as provided under that section.
(Ord. No. 17766, § 1, 4-10-2012; Ord. No. 019644, § 5, 6-11-2024)

12.85.070 Enforcement.

A. Any final judgment, as defined in Section 12.85.065, may be enforced by:

1. Impounding the vehicle;

2. Placing a device ("boot") that prohibits the movement of a motor vehicle on the vehicle that is the subject of the order filed;

3. An additional fine if not paid within the specified time. An additional fine of ten dollars will be assessed every thirty days until paid; provided, however, that said "additional fine" will not exceed sixty dollars. Should the city declare an amnesty period for outstanding citations, the city council, by resolution, may reduce the amount of the fine for violators who pay voluntarily within the amnesty period;

4. Denial of parking permits;

5. In the event that a vehicle has been towed to a City of El Paso impound lot, holding the vehicle until any outstanding fines, fees and costs have been paid; or

6. Refusing to allow the registration of the vehicle as provided by applicable state law.

B. Provided, however, that no vehicle shall be impounded under subsection A.1. or 6. or immobilized under subsection A.2. under this chapter unless the offender has three or more final judgments as defined in Section 12.85.065 in any calendar year. (Ord. 11821 § 4, 1994; Ord. 11051 (part), 1992; Ord. 10971 § 1 (part), 1992)
(Ord. No. 17766, § 2, 4-10-2012)

12.85.080 Procedures for immobilization or impoundment.

A. When a vehicle is found parked, whether legally or illegally, or stopped at any time upon a public street or public property in the city, and such vehicle has met the criteria for immobilization or impoundment as provided in Section 12.85.070, any authorized parking enforcement agent of the city may immobilize the vehicle by the installation on or attachment to the vehicle of a device, or boot, designed to restrict the normal movement of the vehicle. In the alternative, or when a police officer has found a stopped vehicle meeting the criteria for immobilization or impoundment as provided in Section 12.85.070, such vehicle may be towed and impounded; provided, that the towing and impoundment is authorized at the direction of a peace officer.

B. At the time of immobilization, the authorized parking enforcement agent shall also conspicuously attach to the vehicle a written notice on a form provided by the city, the notice to contain the following information:

1. Notice that the vehicle has been immobilized pursuant to this chapter, and that attempted movement may cause damage to the vehicle;

2. That the release of the vehicle may be obtained at a designated place;

3. That there is a right to a hearing regarding the immobilization; and

4. That the vehicle may be towed and impounded after a designated period of time.

C. In the event that a vehicle is towed and impounded, the registered owner of the vehicle thereof shall be responsible for payment of all applicable fees for towing, impoundment and storage, in additions to the fines, costs and fees provided for herein. A police officer may summon a taxi or other public transportation for a person

when the vehicle he was driving or riding in has been impounded pursuant to this section. Such person shall be responsible for payment of the costs of such transportation. Any costs incurred by the city to transport such persons shall become a cost assessed on the registered owner, who shall be responsible for payment of these transportation costs. Towed vehicles that are not redeemed within the time allowed under the Texas Abandoned Motor Vehicle Act will be disposed of in accordance with that Act.

D. This section is to be cumulative of existing law, and nothing herein shall be construed to restrict or limit the right to tow and impound vehicles under other applicable law. (Ord. 12170 § 1, 1994: Ord. 11051 (part), 1992; Ord. 10971 § 1 (part), 1992)

12.85.090 Boot removal.

The registered owner of an immobilized or impounded vehicle, or other authorized person, may secure the release of the vehicle by paying the amount of the fine, any late fees for each delinquent parking citation, the applicable boot fee, transportation costs incurred by the city, towing and storage fees. Failure to request hearing within fourteen days of such payment is an admission of liability of the citations that resulted in the vehicle being booted or impounded and constitutes a waiver of the right to contest such fines and fees. (Ord. 12170 § 2, 1994: Ord. 11821 § 5, 1994: Ord. 11051 (part), 1992; Ord. 10971 § 1 (part), 1992)

12.85.100 Boot hearing.

A. The registered owner of an immobilized or impounded vehicle shall have the right to a prompt post-immobilization hearing ("boot hearing") before the municipal associate judge.

B. The request for a boot hearing shall be made in writing on a form supplied by the city.

C. The boot hearing shall be held within twenty-four hours following the written request therefor, excluding Saturdays, Sundays, and city holidays, at the municipal courts building, or at such other convenient and reasonable place as the municipal associate judge may direct.

D. The issue to be determined at the boot hearing is whether the immobilization was authorized by law.

E. The immobilization of a vehicle is valid if it complies with the requirements of this chapter, unless the owner of the subject vehicle can establish by a preponderance of the evidence that an unauthorized person operated such vehicle at the time and place in question.

F. The determination of the municipal associate judge at the boot hearing is final and shall not be subject to appeal. (Ord. 11821 § 6, 1994; Ord. 11051 (part), 1992; Ord. 10971 § 1 (part), 1992)
(Ord. No. 019644, § 6, 6-11-2024)

12.85.110 Fines and fees.

A. The city council shall, by resolution, adopt a schedule of standard fines for various parking, standing and stopping offenses. Such standard fines shall be in the amount to be paid and accepted by those persons who do not desire a hearing and wish to pay the fines by mail or otherwise.

B. Any person, firm or corporation who violates any provision of this title or Title 14 of this Code related to the parking, standing or stopping of vehicles shall be fined in accordance with the schedule of standard fines adopted by resolution of city council.

C. The boot fee shall be charged in the established amount. Charges for towing or storage of impounded vehicles shall be as provided by the law applicable to abandoned vehicles.

D. All fines, costs and fees shall be deposited in the proper account of the general fund of the city, unless otherwise directed by resolution of the city council. (Ord. 11051 (part), 1992; Ord. 10971 § 1 (part), 1992)

12.85.120 Certain conduct unlawful.

A. It is unlawful for any person, other than an officer or employee of the city acting in the

course scope of his duties under this chapter, to remove or attempt to remove or to tamper in any manner an immobilization device (boot) installed on any vehicle pursuant to this chapter.

B. It is unlawful for any person, except under the direction of a peace officer, to tow or move or cause to be towed or moved any vehicle on which a boot is then installed pursuant to this chapter from the place where it was booted.

C. It is unlawful for any person, other than an officer or employee of the city acting in the course and scope of his duties or the owner or operator of a booted vehicle, to remove or relocate any notice placed upon a booted vehicle under Section 12.85.070(A)(2).

D. Any offense under this section shall be a criminal offense punishable upon conviction by a fine not to exceed five hundred dollars. To the extent that any conduct declared to be unlawful under this section also constitutes a violation of any valid and applicable state law, then it shall be punishable as provided by state law. (Ord. 11051 (part), 1992; Ord. 10971 § 1 (part), 1992)

Chapter 12.88

SCHEDULES

Sections:

12.88.010 Schedule I—One-way streets.

12.88.020 Schedule II—Through streets.

12.88.030 Schedule III—Parking prohibited at all times on certain streets.

12.88.040 Schedule IV—Parking prohibited during certain hours on certain streets.

12.88.041 Schedule IVA—Parking prohibited during certain hours—School days only.

12.88.050 Schedule V—Stopping, standing or parking prohibited during certain hours on certain streets.

12.88.060 Schedule VI—Parking time limited on certain streets.

12.88.070 Schedule VII—Heavy hauling prohibited.

12.88.071 Schedule VIIA—Truck traffic prohibited.

12.88.072 Schedule VIIB—Heavy hauling prohibited between eight p.m. and six a.m.

12.88.080 Schedule VIII—Truck routes—General.

12.88.081 Reserved.

12.88.110 Schedule IX—Special truck routes for hazardous material-carrying vehicles.

12.88.130 Schedule XI—Parking meter zones.

12.88.140 Schedule XII—Location of traffic-control signs, signals and devices.

12.88.150 Schedule XIV—Speed limits.

12.88.160 Schedule XV—City taxicab zone.

12.88.170 Schedule XVI—Parking limited on certain streets on all days.

12.88.180 No stopping or standing—Tow-away zone.

12.88.190 No stopping or standing at any time.

12.88.200 Schedule XVII—Restrictions on parking in residential districts.

12.88.210 Schedule XVIII—Restrictions on commercial vehicle parking on residential streets.

12.88.220 Schedule XIX—Restrictions on parking in downtown parking districts.

12.88.230 Schedule XX—Parking benefit districts.

12.88.010 Schedule I—One-way streets.

In accordance with Section 12.36.020 and when properly signposted traffic shall move only in the direction indicated upon the following streets:

Name of Street	Direction of Traffic Movement
1. Kansas Street	Southbound between Schuster Avenue and East Seventh Avenue.
2. Campbell Street	Northbound between East Seventh Avenue and Schuster Avenue.
9. Myrtle Avenue	Westbound from Alameda Avenue to Stanton Street.
10. Magoffin Avenue	Eastbound from San Antonio Avenue to Alameda Avenue.
11. Rio Grande Avenue	East from Mesa Street to Cotton Street.
12. Grant Avenue	East between Cotton Street and Piedras Street.
13. Arizona Avenue	Westbound between Alabama Street and Oregon Street.

Name of Street	Direction of Traffic Movement
14. Alley west of Stanton Street	Southbound between Mills Avenue and San Antonio Avenue.
15. Alley north of Texas Street	West between Campbell Street and Kansas Street.
17. Alley north of Tularosa Avenue	East between Piedras Street and Raynor Street.
18. Alley north of Wyoming Avenue	West between Piedras Street and Birch Street.
19. Third Avenue	West between El Paso Street and Santa Fe Street.
20. Yandell Drive	West from Birch Street to Santa Fe Street.
21. Birch Street	South from Yandell Drive to Wyoming Avenue.
22. Reserved	
23. Alabama Street	North between Grant Avenue and Arizona Avenue.
24. The alley between Oregon Street and El Paso Street	Northbound between San Antonio Avenue and Sheldon Court.
25. Federal Avenue	West between Grant Avenue and Luna Street.
26. The alley west of McRae Boulevard	Northbound between Bellis and Album.
29. Gateway Boulevard East	Eastbound.
30. Gateway Boulevard West	Westbound.
31. The alley one-half block east of Campbell Street between Yandell Drive and Montana Avenue	Southbound.
33. Reserved	
34. Missouri Avenue	Westbound from Piedras Street to Coldwell Street.
35. Franklin Avenue	Eastbound from Oregon Street to Campbell Street.
36. Stanton Street	Northbound from San Antonio Avenue to Montana Avenue.
37. The alley between Myrtle Avenue and Texas Avenue and Stanton Street and Kansas Street	Northbound from Myrtle to Texas.
38. Reserved	
39. El Paso Street	Northbound from Sixth Avenue to the intersection of San Antonio Avenue.
40. Olive Street	Westbound from Palm Street to Eucalyptus Street.
41. San Antonio Avenue	Eastbound, that portion of San Antonio Avenue which lies north of the Franklin Canal between Palm Street and Eucalyptus Street.
42. Wyoming Avenue	East between Santa Fe Street and Kansas Street.
44. Raynor Street	Northbound from Gateway Boulevard East to Pershing Drive.
45. Service Road on east side of Piedras Street	Northbound from Almeda Avenue to Rosa Avenue.

Name of Street	Direction of Traffic Movement
46. Service Road on north side of Texas Avenue	Westbound from a point 22 feet west of the Piedras Street overpass structure to Poplar Street.
47. Service Road on south side of Texas Avenue	Eastbound from Poplar Street to a point 22 feet west of the Piedras overpass structure.
48. Durango Street Service Road, east	North between San Antonio Avenue and San Francisco Avenue.
49. Durango Street, service road, west	South between San Francisco Avenue and San Antonio Avenue.
50. Gateway Boulevard South	Southbound.
51. Gateway Boulevard North	Northbound.
52. Monroe Avenue	Eastbound between Piedras Street and the easternmost intersection of Monroe Avenue with Pollard Street.
53. Van Buren Avenue	Westbound between Pollard Street and Piedras Street.
54. Sheridan Road	Northbound between Apollo Avenue and the north city limits.
55. Reserved	
56. Jupiter Street	Southbound between Dyer Street and the north city limits.
57. Detour Road	Southbound on the extension of Jupiter Street between Dyer Street and its intersection with Sheridan Road near Apollo Avenue.
58. Overland Street Service Road	Eastbound from its intersection with Overland Street just east of Tornillo Street to the Cotton Street Service Road.
59. Cotton Street Service Road	Northbound from Overland Street Service Road to San Antonio Avenue.
60. Alley west of Santa Fe Street	North between Overland Avenue and San Antonio Avenue.
61. Main Drive	Westbound between Los Angeles Drive and Yandell Drive.
62. Alley between Mesa Street and Oregon Street	Southbound from Missouri Avenue to Franklin Avenue.
63. Lamar Street	Southbound between Bliss Avenue and Hueco Avenue.
64. Glenwood Street	Northbound between Webster Avenue and Gateway Boulevard East.
65. Flower Drive	Westbound between Glenwood Street and Buena Vista Street.
66. Alley west of Stanton Street	Northbound between Mills Avenue and Main Drive.
67. Estrella Street	Northbound from Alameda Avenue to Durazno Avenue.
68. San Marcial Street	Southbound between Gateway East Boulevard and Alameda Avenue.
69. Hernandez Street	Southbound between Abdou Street and Blanco Avenue.
70. Alley between North Mesa Street and North Oregon Street	Southbound between Robinson Avenue and Boston Avenue.
71. Sandoval Court	Eastbound from Candelaria Street to San Fernando Court.

Name of Street	Direction of Traffic Movement
72. The alley between Mesa Street and Stanton Street	Southbound between Texas Avenue and San Antonio Avenue.
73. The alley between Kansas Street and Campbell Street	Southbound between Overland Street and First Street.
74. Teodoso Drive	Westbound between Pendale Drive and a point 200 feet east thereof.
75. Reserved	
76. Central Avenue	Westbound between Piedras Street and Paisano Drive.
77. The alley between Harris Street and Zaragoza Road north of Alameda Avenue	Eastbound from Harris Street to Zaragoza Road.
78. Depot Street between Alameda Avenue and alley	Northbound from Alameda Avenue to alley.
79. Schutz Drive	Northbound between Alameda Avenue and Teodoso Drive.
80. Laurel Street	Southbound between Montana Avenue and Cotton Street.
81. Reserved	
82. Reserved	
83. Coldwell Street	Southbound between West Missouri Avenue and Franklin Street.
84. Dorbandt Circle	Northbound from Irwin Avenue to Davis Drive.
85. San Francisco Avenue	Eastbound from Coldwell Street to Durango Street.
86. Anthony Street	Northbound from Paisano Drive to San Francisco Avenue.
87. Reserved	
88. Rosa Avenue	Westbound from Luna Street to Cebada Street.
89. Laurel Street	North Bound between Yandell Avenue and Wyoming Avenue.
90. Cincinnati Avenue	Westbound from Stanton Street to Mesa Street.
91. Boston Avenue	Westbound from Campbell Street to Kansas Street.
92. Ladrillo Avenue	Eastbound from Hudspeth Place to Lee Street.
93. North Desert Boulevard	Northbound between Mesa Street and the north city limits.
94. South Desert Boulevard	Southbound between Mesa Street and the north city limits.
95. Alley north of Yandell Avenue	West between Piedras Street and Birch Street.
96. East First Avenue	Eastbound From Coles Street to its terminus.
97. West Main Drive	Westbound From El Paso Street to North Santa Fe Street.

(Ord. 16869 § 1, 2008; Ord. 16204 § 1, 2005; Ord. 16106 § 1, 2005; Ord. 15858 § 1, 2004; Ord. 15704 § 1, 2004; Ord. 14964 § 1, 2001; Ord. 14877 § 1, 2001; Ord. 14868 § 1, 2001; Ord. 14803 § 1, 2001; Ord. 14078 § 1, 1999; Ord. 13686 § 1, 1998; Ord. 12849 § 1, 1996; Ord. 12295, 1995; Ord. 12259, 1995; Ord. 11327 § 1, 1993; Ord. 11091 § 1, 1992; Ord. 11072 § 1, 1992; Ord. 10489 § 1, 1991; Ord. 10486 § 1, 1991; Ord. 10307 § 1, 1990; Ord.

9832 § 1, 1989; Ord. 9435 § 1, 1988; Ord. 9370 § 1, 1988; Ord. 9369 § 1, 1988; Ord. 9006 § 1, 1987; Ord. 8793 § 1, 1986; Ord. 8792 § 1, 1986; Ord. 8694 § 1, 1986; Ord. 8636 § 1, 1986; Ord. 8618 § 1, 1986; Ord. 8485 § 1, 1986; Ord. 8650 § 1, 1986; prior code § 20-177)
(Ord. 17026, § 1, 11-18-2008; Ord. 17186, § 1, 9-1-2009; Ord. 17187, § 1, 9-1-2009; Ord. 17214, § 1, 10-13-2009; Ord. No. 17780, § 1, 5-1-2012; Ord. No. 18147, §§ 1—3, 4-1-2014; Ord. No. 18232, § 1, 8-19-2014; Ord. No. 18467, § 1, 2-23-2016; Ord. No. 18642, § 1, 3-7-2017; Ord. No. 18643, § 1, 3-7-2017; Ord. No. 18644, §§ 1, 2, 3-7-2017; Ord. No. 18823, § 1, 7-24-2018; Ord. No. 019675, § 1, 9-24-2024)

12.88.020 Schedule II—Through streets.

In accordance with the provisions of Section 12.60.010, and when signs are erected giving notice thereof, drivers of vehicles shall stop at every intersection before entering any of the following streets or parts of streets:

Airport Road;

Airway Boulevard—between Interstate Highway 10 and Montana Avenue;

Alabama Street;

Alameda Street;

Alcan Street;

Altura Avenue—from the east line of Alabama Street to the west line of Pershing Drive;

Arizona Avenue;

Balboa Road;

Bassett Avenue;

Brown Street — from the south line of Rim Road to the north line of Arizona Avenue;

Byron Street — from the north line of Jackson Avenue to the south line of Hayes Avenue;

Cadiz Street;

Campbell Street — between North Avenue and Schuster Avenue;

Carolina Drive;

Chelsea Street;

Cielo Vista Drive;

Cincinnati Avenue — from the east line of Oregon Street to the west line of Ochoa Street;

Clark Drive — from the north line of Delta Drive to the west line of Geronimo Drive;

Copia Street — between Alameda Avenue and Jefferson Avenue;

Cotton Street — from the north line of Seventh Avenue to the south line of San Diego Avenue;

Country Club Road;

Crestmont Drive;

Dale Road;

Delta Drive — from the east line of Hammett Street to the south line of Alameda Ave;

Diana Drive;

Doniphan Drive;

Durazno Avenue — from the east line of Boone Street to the west line of Raynolds Street;

Durrill Road;

Dyer Street;

Edgemere Boulevard;

El Paso Drive;

El Paso Street — from the International Boundary line to the south line of San Francisco Avenue;

Emerson Street;

Fairbanks Drive;

Fifth Avenue — from the east line of El Paso Street to the west line of Cotton Street;

Fort Boulevard — from the east line of Alabama Street to the west line of Dyer Street;

Fred Wilson Road, except at its intersection with Alabama Street, at which intersection Alabama Street shall be the through street;

Gateway Boulevard;

George Orr Road;

Geronimo Drive — from the north line of Trowbridge Drive to the south line of Clark Drive;

Giles Road;

Grant Avenue — from the east line of Cotton Street to the west line of Raynor Street;

Hammett Street — between Delta Drive and Alameda Avenue;

Hastings Drive — from the east line of Pershing Drive to the west line of Raynolds Street;

Hawkins Boulevard;

Hayes Avenue;

Hercules Drive;

Honda Pass Drive;

Hunter Drive;

Joe Herrera Drive;

Kansas Street — from the north line of Paisano Drive to the south line of Schuster Avenue;

Lomaland Drive;

Magnetic Street;

Magoffin Avenue;

Main Drive — from the west line of Campbell Street to the south line of West Yandell Drive;

McCombs Street;

McRae Boulevard;

Mesa Street — from the north line of Paisano Drive to the east line of Doniphan Drive;

Mesita Drive — from the east line of Mesa Street to the west line of Stanton Street;

Missouri Avenue — from the east line of Campbell Street to the west line of Stevens Street;

Montana Avenue;

Montwood Drive;

Myrtle Avenue;

North Loop Drive;

O'Keefe Drive;

Oregon Street — from the north line of Paisano Drive to the south line of Robison Street;

Overland Avenue;

Paisano Drive;

Pendale Road — from the north line of Whitney Road to the south line of North Loop Road;

Pershing Drive;

Piedras Street;

Phoenix Avenue;

Radford Street — from the north line of Yandell Drive to the south line of Pershing Drive;

Railroad Drive;

Raynolds Street;

Richmond Avenue — from the east line of Kentucky Street to the west line of Piedras Street;

Rio Grande Avenue;

River Bend Drive;

Riverside Drive;

Roosevelt Street — from the north line of Montana Avenue to the south line of Nashville Avenue;

Rushing Road;

Saint Vrain Street — from the north line of Ninth Avenue to the south line of San Antonio Avenue;

San Antonio Avenue from the east line of Paisano Drive to the west line of Cotton Street;

Sanders Avenue;

San Jose Road;

Santa Fe Street — from the International Boundary Line to the south line of San Francisco Avenue;

Scorro Drive — from the east line of Zaragosa Road to the east city limits;

Second Avenue — from the east line of Saint Vrain Street to the west line of Park Street;

Sheridan Street;

Sixth Avenue — from the east line of Campbell Street to the west line of Park Street;

Stanton Street;

Sumac Drive;

Sun Valley Drive;

Tetons Drive;

Texas Avenue;

Thunderbird Drive;

Timberwolf Drive from the east line of Raynolds Street to the west line of Chelsea Street;

Trowbridge Drive;

University Avenue;

Val Verde Street from the north line of Delta Drive to the south line of Alameda Avenue;

Van Buren Avenue from the east line of Alabama Street to the west line of Dyer Street;

Viscount Boulevard;

Wedgewood Street;

Wells Road from the east line of Niles Street to the west line of Zaragosa Road; Woodrow Bean Trans Mountain Drive between McCombs Street and War Road Road No. 11;

Wyoming Avenue from the east line of Oregon Street to the west line of Copia Street;

Yandell Drive from the east line of Doniphan Drive to the west line of Frederick Road;

Zaragosa Road. (Ord. 8432 §§ 1, 2, 1985; prior code § 20-178)

12.88.030 Schedule III—Parking prohibited at all times on certain streets.

In accordance with Section 12.52.020 and when signs are erected or the curb is painted yellow giving notice thereof, no person shall at any time park a vehicle upon any of the following described streets or parts of streets:

1. Paisano Drive from Santa Fe Street to Alameda Avenue, both sides;

2. Yandell Drive from Birch Street to Piedras Street on the south side;

3. Alabama Street from Grant Avenue to Van Buren Avenue, both sides;

4. Edson Avenue on the west side;

5. Airport Road from Montana Avenue to Fred Wilson Road, both sides;

6. Montana Avenue from Piedras Street to Raynor Street on either side;

7. Montana Avenue from Cielo Vista Drive to a point 175 feet west of Loretto Road;

8. Alameda Avenue between Boone Street and Buena Vista Street, both sides;

9. Both sides of Fred Wilson Road from Alabama Street to Dyer Street;

10. Cincinnati Avenue from Kansas Street to the alley east of Stanton Street;

11. Anthony Street from San Antonio Avenue to Western Avenue on the east side;

12. University Avenue from Oregon Street to Kansas Street, both sides;

13. Chelsea Street from Montana Avenue to Trowbridge Drive on the east side;

14. Hayes Avenue from Dyer Street to Copia Street, on the north side;

15. Paisano Drive between Leon Street and Santa Fe Street, south side;

16. Doniphan Drive from the Main Street Viaduct to the entrance to the Southwestern Portland Cement Plant;

17. Chelsea Street from El Paso Drive to Gateway Boulevard, both sides;

18. Hawkins Boulevard from a point 285 feet north of Shuttle Columbia Drive to North Loop Drive, both sides;

19. The north side of North Loop Drive between Hunter Drive and a point 150 feet westerly thereof;

20. Trowbridge Drive between Raynolds Street and North Loop Drive, both sides;

21. Texaco Road from North Loop Drive to Trowbridge Drive, both sides;

22. Lockhart Place, north of Montana Avenue for a distance of four hundred feet on both sides of Lockhart Place;

23. Schuster Avenue between Campbell Street to its terminus at the west end, both sides;

24. Deleted;

25. Loretto Road between Montana Avenue and Ellis Street, both sides;

26. Alameda Avenue, from Buena Vista Street to Glenwood Street, south side;

27. Deleted;

28. The south side of El Paso Drive, extending approximately 135 feet east from the east curbline of Euclid Street;

29. The north side of El Paso Drive, extending approximately 130 feet east from the east curbline of Euclid Street;

30. The south curbline of Montana Avenue, extending approximately 145 feet east from the east curbline of Birch Street;

31. Clark Drive from Dulaney Avenue to a point 76 feet north of Trowbridge Drive, both sides;

32. Wyoming Avenue from Piedras Street to Maple Street, both sides;

33. Cotton Street, from Arizona Avenue to Myrtle Avenue, both sides;

34. San Antonio Avenue, to south side of that portion which lies north of the Franklin Canal between Palm Street and Eucalyptus Street;

35. Howze Street from the Fort Bliss Military Reservation boundary to the alley immediately south of Post Way, both sides;

36. Schuster Avenue from the east side of Virginia Street to Brown Street, both sides;

37. Clark Drive from El Paso Drive to Dulaney Avenue, west side only;

38. Yarbrough Drive from Alameda Avenue to a point 200 feet north of San Jose Road, both sides;

39. On the following described portions of South El Paso Street:

a. South El Paso Street from Henry Trost Court/West Mills Avenue to West San Antonio Avenue, west side only;

b. South El Paso Street from Henry Trost Court/West Mills Avenue to a point three hundred eleven feet along the curb line south, and east along the curb line of East San Antonio Avenue, to the alley;

c. South El Paso Street from West San Antonio Avenue to a point two hundred sixty feet north along the curb line, and east along the curb line on East San Antonio Avenue, to the alley;

40. North Loop Drive from a point 450 feet northwest of the centerline of Yarbrough Drive to a point 400 feet southeast of the centerline of Yarbrough Drive, both sides;

41. The south side of Gateway Boulevard East, from the east curbline of Piedras Street to a point 180 feet east;

42. On the north side of Will Ruth Avenue extending approximately 827 feet east from Dyer Street;

43. The north side of Third Avenue from Cotton Street to a point 258 feet east of the east curbline of Cotton Street;

44. The east side of Scenic Crest;

45. The south side of Zion Drive from Alabama Street to Old Spanish Trail and the north side of Zion Drive from Alabama Street to a point 270 feet west thereof;

46. Sioux Drive between Edgemere Boulevard and Cheyenne Trail, both sides, and between Montana Avenue and a point 250 feet south thereof, east side;

47. The east side of Cotton Street from the south curbline of Myrtle Avenue to a point 240 feet south thereof;

48. The north side of Yandell Drive extending 125 feet west of Palm Street;

49. Both sides of Concepcion Street from Rosa Avenue to Alameda Avenue;

50. Reserved.

51. The south side of Rosa Avenue between Raynolds Street and Concepcion Street;

52. On the following described parts of Geronimo Drive:

a. East side of Geronimo Drive from Montana Avenue to a point 100 feet north thereof,

b. Both sides of Geronimo Drive from Montana Avenue to Gateway Boulevard West,

c. The west side of Geronimo Drive from Clark Drive to Gateway Boulevard East;

53. Both sides of Murchison Road from the east curbline of Brown Street to a point 372 feet east thereof. The prohibition in this paragraph shall not apply on Sundays;

54. Murchison Road from Georgia Place to Cotton Street, both sides;

55. Both sides of Arizona Avenue from the east curbline of Magnolia Street to the west curbline of Rosewood Street;

56. The north side of Grant Avenue from the west curbline of Magnolia Street to a point 81 feet west thereof;

57. The north side of Industrial Avenue from a point 212 feet east of the east curbline of Hawkins Road to a point 888 feet east thereof, except however a yellow zone beginning at a point 420 feet east of the east curbline of Hawkins Road and extending east a distance of 300 feet, which zone is designated as a passenger loading zone for use as provided in Section 12.48.010

58. The south side of Industrial Avenue from Hawkins Road to Tony Lama Street;

59. Both sides of North Loop Drive from Delta Drive to Emerson Street;

60. Both sides of Bermuda Avenue from the east curbline of McRae Boulevard to a point 40 feet east thereof;

61. On the following described portions of Magruder Street:

a. The west side of Magruder Street between Montana Avenue and Gateway West Boulevard,

b. The east side of Magruder Street from a point 200 feet north of Gateway West Boulevard to Montana Avenue,

c. The east side of Magruder Street from Montana Avenue to a point 620 feet north thereof;

62. The south side of Welch Avenue from the east curbline of Clark Drive to a point 75 feet east thereof;

63. Viscount Boulevard from Interstate Highway 10 to Bellrose Drive;

64. Copia Street on the west side from Paisano Drive to San Antonio Avenue;

65. Copia Street on the east side from the north curbline of Paisano Drive to a point 190 feet north thereof;

66. Sunset Drive on the east side from the south curbline of Riverbend Drive to a point 100 feet south thereof;

67. The south side of Durazno Avenue from Piedras Street to Raynor Street;

68. The north side of Durazno Avenue from a point 125 feet east of the east curbline of Piedras Street to Raynor Street;

69. The west side of Elm Street from the west curbline of Piedras to the alley just east thereof;

70. Mesa Street from Main Drive to Doniphan Drive, both sides;

71. Pebble Beach Drive from Shadow Mountain Drive east on both sides to a point 128 feet west of the west curbline of Burning Tree Drive;

72. The east side of Hadlock Street form Alameda Avenue to a point 72 feet south thereof;

73. The west side of Hadlock Street from Alameda Avenue to a point 50 feet south thereof;

74. Shadow Mountain Drive on the east side between Mesa Street and a point 500 feet north thereof;

75. Shadow Mountain Drive on the west side between Mesa Street and Enterprise Court;

76. Shadow Mountain Drive on the east side between Pebble Beach Drive and a point 175 feet south thereof;

77. West side Piedras Street from Alameda Avenue to Magoffin Avenue;

78. East side Piedras Street from Alameda Avenue to a point 200 feet south thereof;

79. West side only of the service road on the east side of Piedras Street from Alameda Avenue to a point 100 feet north of Rosa Avenue;

80. Both sides Texas Avenue and the Texas Avenue service roads from Poplar Street to the service road on the east side of Piedras Street;

81. North side Texas Avenue from Poplar Street to a point 110 feet west thereof;

82. South side Texas Avenue from Poplar Street to a point 100 feet west thereof;

83. Both sides Rosa Avenue from the service road on the east side of Piedras Street to a point 160 feet east thereof;

84. Both sides Raynor Street from Gateway Boulevard East to Montana Avenue;

85. On the following described portions of Piedras Street:

a. Both sides from Grant Avenue to Montana Avenue,

b. Both sides from Yandell Drive to Gateway Boulevard East;

86. Both sides service road on the east side of Piedras Street from Gateway Boulevard East to Durazno Avenue;

87. Both sides of Carolina Drive from Yarbrough Drive to Franklin Road/Stiles Drive;

88. Both sides Yermoland Drive from Yarbrough Drive to Tarrant Road;

89. Pera Avenue from the west curbline of Copia Street to a point one hundred feet west thereof, on the north side;

90. Wyoming Avenue on the north side between Willow Street and Cotton Street;

91. Wyoming Avenue on the south side between a point 295 feet west of the west curbline of Willow Street and Williams Street;

92. Dallas Street, both sides, between Gateway Boulevard East and Missouri Avenue;

93. Magnetic Street, the west side between the north curbline of Titanic Avenue and a point 100 feet north thereof;

94. Alameda Avenue between Malaga Place and Snelson Drive, both sides;

95. The north side of Alameda Avenue from Snelson Drive east of Old Country Road;

96. Alameda Avenue on the south side between Snelson Drive and a point seventy-five feet east of Gibbs Street;

97. Will Ruth Avenue from Rutledge Drive to a point 336 feet west thereof, the south side;

98. The west side of Humble Place from a point three hundred feet south of Gateway Boulevard East to a point eight hundred feet south of Gateway Boulevard East;

99. McKellingon Drive, the south side, from Stanton Street to a point 82 feet west thereof;

100. Nashville Avenue, the south side, from Alabama Street to a point 60 feet west thereof;

101. Bataan Circle, both sides, from Raynolds Street to a point 80 feet west thereof;

102. Delta Drive between Boone Street and Nino Aguilera Street, both sides;

103. Lomaland Drive from North Loop Road to a point 200 feet north of the centerline of Highland Drive, both sides;

104. Cypress Avenue between Piedras Street and a point 408 feet west thereof, north side only;

105. Douglas Avenue between Stevens Street and a point two hundred feet west thereof, south side only;

106. On the following described parts of Gateway Boulevard East, both sides:

a. Between a point 1,800 feet west of the center line of Zaragosa Road and the east city limits,

b. Between a point 1,200 feet east of Lomaland Drive and Stanley Street,

c. Between Corral Drive and Benson Drive,

d. Between Hunter Road and a point 1800 feet west of the centerline of Hunter Road,

e. Between points 1,000 feet east and 2,000 feet west of the centerline of Hawkins Boulevard,

f. Between a point 1,100 feet east of the center line of Airway Boulevard and the Southern Pacific Railroad (Fort Bliss Spur);

g. Between Southern Pacific Railroad (Fort Bliss Spur) and Romany Street,

h. Between a point 150 feet east of Chelsea Drive and Ledo Street,

i. Between Copia Street and a point 200 feet west of Grama Street,

j. Between Cebada Street and San Marcial Street,

k. Between Piedras Street and Eucalyptus Street,

l. Between Mesa Street and Graphite Street;

107. On the following described parts of Gateway Boulevard West, both sides:

a. Between points 1,500 feet east and 800 feet west of the centerline of Lomaland Drive,

b. Between Sumac Drive and a point 1,200 feet west of the centerline of McRae Boulevard,

c. Between points 2,000 feet east and 1,100 feet west of the centerline of Hawkins Boulevard,

d. Between points 2,000 feet east of the center line of Airway Boulevard and Robert E. Lee Road,

e. Between a point 1500 feet east of the center line of Geronimo Drive and Chelsea Drive,

f. Between Regan Street and Reynolds Boulevard,

g. Between a point 100 feet east of Copia Street to Copia Street,

h. Between Grama Street and Raynor Street;

108. West Main Drive, both sides, between Fewel Street and Porfirio Diaz Street;

109. Sun Bowl Drive, both sides between West Yandell Drive and the University of Texas at El Paso property line just north and west of Schuster Avenue;

110. San Paulo Drive between Lafayette Drive and Yarbrough Drive, north side only;

111. Both sides of Rim Road from a point 60 feet west of North El Paso Street to a point 60 feet east of North El Paso Street;

112. North Stanton Street, between Buckingham Drive and a point 80 feet north thereof, east side only;

113. Van Buren Avenue between Pollard Street and a point 100 feet west of Dyer Street, south side

only, and all sides of the raised island constructed in Van Buren Avenue at its intersection with Pollard Street;

114. Monroe Avenue between Cranfill Street and Dyer Street, south side only; between Dyer Street and the Westernmost intersection of Monroe Avenue with Pollard Street, north side only; between the two intersections of Monroe Avenue with Pollard Street, both sides; and all sides of the raised island constructed in Monroe Avenue at its intersection with Pollard Street;

115. On the following described parts of Surety Drive:

a. Between Gateway Boulevard East and a point 50 feet south thereof, west side only,

b. Between Gateway Boulevard East and Clark Street on the east and north sides only;

116. McCombs Street between Dyer Street and Railroad Drive;

117. Industrial Avenue between Humble Place and Hawkins Boulevard, both sides;

118. On the following described parts of Hercules Avenue:

a. Between Neptune Street and Dyer Street, both sides,

b. Between Dyer Street and Howard Street, south side only,

c. Between Dyer Street and a point 500 feet east thereof, north side only;

119. Montana Avenue between Grama Street and Marr Street, both sides;

120. Altura Avenue from Happer Way to a point 480 feet east of Pershing Drive;

121. Hondo Pass Drive between a point 550 feet east of Dyer Street and a point 570 feet west of Dyer Street, both sides, and between Gateway Boulevard north and a point 500 feet east of Norton Street, both sides;

122. McRae Boulevard between Gateway Boulevard West and Wedgewood Drive, east side only;

123. Balboa Drive between Dew Drive and Pinta Avenue, both sides;

124. Airway Boulevard, both sides;

125. Cliff Drive between Golden Hill Terrace and a point 100 feet west of Utah Street, both sides;

126. Raynolds Street from Alameda Avenue to Gateway Boulevard East, both sides;

127. Valverde Street between Alameda Avenue and a point 350 feet south of Paisano Drive, both sides;

128. Magnetic Street between Olympia Avenue and Hercules Avenue, east side only;

129. Deleted;

130. Edgemere Boulevard between Catalina Way and Geronimo Drive, both sides;

131. Edgemere Boulevard frontage roads between Airway Boulevard and Robert E. Lee Road, both sides;

132. Tetons Drive between Dyer Street and Guadalupe Drive, both sides;

133. Carnegie Avenue, from east end of Empire Avenue to Killarney Street, both sides;

134. Rutherglen Street, between Montana Avenue and Carnegie Avenue, both sides;

135. McRae Boulevard between Montana Avenue and Carnegie Avenue, both sides;

136. Derrick Road between Montana Avenue and Carnegie Avenue, both sides;

137. Killarney Street between Montana Avenue and Carnegie Avenue, both sides;

138. Wedgewood Drive between Montana Avenue and Carnegie Avenue, both sides;

139. Both sides of Railroad Drive from Fred Wilson Road to Woodrow Bean Trans Mountain Drive;

140. Pershing Drive from Grama Street to the Fort Bliss entrance just east of Marr Street, both sides;

141. Dyer Street from Pershing Drive to the north city limits, both sides;

142. West side of Cotton Street from Arizona Avenue to the first alley north of Arizona;

143. East side of Cotton Street from Arizona Avenue north to Atlanta Avenue;

144. Cloudview Drive from a point 350 feet west of Northwind Drive to a point 800 feet west thereof, north side;

145. Copia Street between Memphis Avenue and Gateway Boulevard East, both sides;

146. Both sides of Confetti Drive from Mesa Street to a point 200 feet north of Carousel Drive;

147. Campbell Street between the north right-of-way line of Ninth Avenue and Loop 375 (Border Highway), both sides;

148. Kansas Street between Ninth Avenue and Loop 375 (Border Highway), both sides;

149. Mesa Street between Ninth Avenue and Loop 375 (Border Highway), both sides;

150. Oregon Street between the north right-of-way line of Ninth Avenue and Loop 375 (Border Highway), both sides;

151. Park Street between Ninth Avenue and Loop 375 (Border Highway), both sides;

152. Sims Drive between Ray Watt Drive and McRae Boulevard, both sides;

153. South side of Van Buren Avenue from the west line of Dyer Street to a point 270 feet west of Dyer Street;

154. Both sides of Resler Drive from Mesa Street to a point 350 feet south of Alto Ray Avenue;

155. Both sides of Resler Drive from Mesa Street to a point 500 feet south of Mesa Street;

156. Both sides of Escondido Drive from the west property line of Dawn Street to a point 900 feet east of Westwind Drive;

157. Both sides of Hunter Drive between North Loop Drive and a point 450 feet north of Phoenix Drive;

158. Both sides of Caper Road between Bois D'Arc Drive and Gateway Boulevard West;

159. On the following described portions of Market Avenue:

a. The southside of Market Avenue from Hawkins Boulevard to Wall Road,

b. The north side of Market Avenue from Hawkins Boulevard to a point 600 feet west of Eastside Road;

160. Both sides of Pheasant Road from McCombs Street to a point 200 feet east thereof, measured along the centerline of Pheasant Road;

161. The southwest side of Verdeland Drive from Lomaland to Lomita Drive;

162. Lomaland Drive between Gateway Boulevard West to Adauto Court;

163. The east side of Cessna Drive from Montana Avenue to a point 300 feet south thereof;

164. The north side of Hayes Avenue from Dyer Street to Pollard Street;

165. Both sides of Knights Drive from east property line of Pirche Street to west property line of Riverside Drive;

166. Both sides of Wallington Drive from Mesa to a point 470 feet Southeast thereof;

167. Sanders Avenue, both sides, from Salisbury Drive to Dyer Street;

168. Both sides of Midway Drive between Alameda Avenue and Loop 375 (Border Highway);

169. Fonseca Drive, both sides, from Delta Drive to Loop 375 (Border Highway);

170. Both sides of David Drive from Alameda Avenue to Independence Drive;

171. Both sides of Delta Drive from North Loop Drive—Trowbridge Drive to a point 200 feet west of the most westerly property line of Pecos Street;

172. Both sides of the South Stanton Street Frontage Road adjacent to the east side of the Stanton Street Bridge from Eighth Avenue South to its end;

173. Both sides of Hockney Street between Kelvin Avenue and Midway Drive;

174. Baltimore Avenue between Mesa Street and Oregon Street, both sides;

175. West side of Concepcion Street from Blanco Avenue to Delta Street;

176. Both sides of Rushing Boulevard from Orleans Avenue to Kodiak Avenue;

177. Zaragosa Road from Gateway Boulevard East to the Border Highway (Loop 375);

178. Crosby Avenue, both sides from Hawthorne Street west to alley;

179. Medical Center Street between a point feet south of Curie Drive and a point 175 feet south thereof, west side;

180. Medical Center Street between Cliff Avenue and a point 160 feet north thereof, west side;

181. Medical Center Street between a point 180 feet north of Cliff Avenue and a point 125 feet north thereof, east side;

182. Medical Center Street between Curie Drive and a point 250 feet south thereof, east side;

183. Liberty Street from Alameda Avenue to Coloma Circle, both sides;

184. Phoenix Avenue from Hunter Drive to Hawkins Boulevard, both sides;

185. North side of Brook Hollow Drive from a point 300 feet west of Geronimo Drive, west to a point 660 feet thereof;

186. Mills Avenue from Mesa Street to Oregon Street, south side only;

187. Both sides of Album Avenue from Bush Lane to Yarbrough Drive;

188. The north side of Album Avenue from Yarbrough Drive to Penwood Drive;

189. The south side of Album Avenue from Yarbrough Drive to Ruewood Place;

190. Vista Del Sol Drive from Sumac Drive to city limits, both sides;

191. McKelligon Canyon Road both sides from Alabama Street to William Beaumont Army Hospital entrance;

192. Mesa Street from Mills Avenue to San Antonio Avenue, west side only;

193. Both sides of Lee Trevino Drive from Montana Avenue to North Loop Drive;

194. Montwood Drive from Bobby Jones Drive to a point 700 feet west of Lee Trevino Drive, both sides;

195. Belvidere Street from Mesa Street to a point 450 feet north, both sides;

196. The west side of McRae Boulevard from Desert Hills Drive to a point 250 feet north thereof;

197. Pan American Drive, both sides;

198. Plaza Circle, both sides;

199. Oro Verde Road, both sides;

200. Audubon Street, east side, from Fairbanks Drive to a point 290 feet south;

201. Audubon Street, west side, from Fairbanks Drive to a point 160 feet south;

202. Audubon Street, east side, from a point 195 feet north of TransMountain to a point 230 feet north thereof;

203. Both sides of Yarbrough Drive from the southerly curbline of Alameda Avenue to the northerly curbline of (Loop 375) Border Highway;

204. Kastrin Street from Pendale Road to Gateway East Boulevard, both sides;

205. Mayflower Avenue, from Mattox Street to Shell Street, both sides;

206. Argonaut Drive to a point 300 feet east of Mesa on north side;

207. River Avenue from Lawton Drive to Los Angeles Drive, north side only;

208. Glenwood Street, 260 feet south of Alameda, both sides;

209. Cloudview Drive, both sides, between Champions Place and Resler Drive;

210. Wheeling Avenue, both sides from Scenic Drive to a point 225 feet east thereof;

211. Overland Avenue on the north side, from Florence Street to a point 170 feet west and on the south side from Florence Street to a point 200 feet west;

212. Crownpoint Drive, Mesa Street to the west end of Puma Circle;

213. Rojas Drive between Kaiser Drive and east city limits, both sides;

214. Socorro Road (FM 258) from Southside Road to Carl Longuemare Road, on both sides of Socorro Road;

215. Acer Avenue between Viscount Boulevard and McRae, both sides;

216. Both sides of Gail Borden Place from Pellicano Drive south 800 feet to the end of the cul-de-sac;

217. Student Place, both sides from Midway Drive to Vocational Drive;

218. Vocational Drive, both sides, from Alameda Avenue to Mimosa Avenue;

219. Loop 375 (Woodrow Bean Trans Mountain Drive), north side only, from Alcan Street to Dyer Street;

220. Both sides of Vanderbilt drive from Pellicano Drive to a point 400 feet north of Armour Drive;

221. George Dieter Drive, both sides, from Edgemere Boulevard to Zaragosa Road;

222. Mesa Hills Drive, both sides, between Mesa Street to a point 300 feet of the easterly intersection of Acacia Circle;

223. Mesa Hills drive, both sides, between Stanton Street to a point 600 feet of Kingsfield Avenue;

224. The 500 block of South Walnut Street from Cypress Avenue north to the Franklin Canal, both sides;

225. Both sides of Wedgewood Drive from Palmetto Drive to a point 500 feet south of Montwood Drive;

226. Both sides of Thunderbird Drive, from Shadow Mountain Drive to a point 385 feet south thereof, and to a point 385 feet north thereof;

227. Both sides of Remcon Circle from the 7400 block of Mesa Street to the 7500 block of Mesa Street;

228. Montwood Drive, the south side of Yarbrough Drive to a point 180 feet west thereof;

229. Both sides of Mattox Street from the north curbline of Montana Avenue to a point 200 feet north thereof;

230. The west side of Byron Street, from Polk Avenue to Taylor Avenue;

231. The north curbline of Crossroads Drive extending approximately two hundred feet east from the east curbline of Doniphan Drive;

232. The east curbline of Crossroads Drive extending approximately two hundred feet south from the south curbline of Mesa Street;

233. Both sides of Old Pueblo Road from Alameda Avenue to Socorro Road;

234. The north side of Pebble Hills Boulevard between Yarbrough Drive and Brady Street;

235. Both sides of Cromo Drive from the south curbline of Sunland Park Drive to a point two hundred feet south thereof;

236. Both sides of Mimosa Avenue from Midway Drive to a point 250 feet north thereof;

237. Both sides of Boeing Drive from Airport Road to Airway Boulevard;

238. The south side of Mulberry Avenue from Warriors Drive to a point 250 feet east thereof;

239. The south side of the Paisano Drive service Road from Cortez Drive to a point 492 feet east thereof;

240. West side of Westcity Court from Waymore Drive to Eubank Court;

241. Both sides of Waymore Drive from Mesa Street to a point 212 feet west of Westcity Court;

242. Both sides of Fullan Street from Alameda Avenue to Alberta Avenue;

243. Both sides of Alberta Avenue from Boll Place to the west boundary of Raynolds Street;

244. Boll Place from Alameda Avenue to Alberta Avenue, both sides;

245. The west side of Resler Drive from Mesa Street to a point 800 feet south thereof;

246. Both sides of Founders Boulevard from Airport Road east to Walter Jones Drive;

247. Both sides of Walter Jones Drive from Founders Boulevard to its end;

248. Both sides of Spur Drive from Leigh Fisher Boulevard east to its end;

249. Both sides of Butterfield Trail Boulevard from Airport Road east to Butterfield Circle;

250. Both sides of Butterfield Circle from Butterfield Trail Boulevard north to Butterfield Trail Boulevard;

251. Both sides of Leigh Fisher Boulevard from Airport Road to Founders Boulevard;

252. Both sides of Concord Street from Butterfield Trail Boulevard to Founders Boulevard;

253. Both sides of Zane Gray Street from Leigh Fisher Boulevard to Founders Boulevard;

254. Both sides of Celerity Wagon Drive from Spur Drive to Walter Jones Drive;

255. On the west side of Tony Lama Street from a point 270 feet south of Gateway Boulevard East to a point 225 feet south thereof;

256. Reserved.

257. The east side of Yarbrough Drive from Woodard Court to a point 260 feet south thereof;

258. The north side of El Paso Drive from Glenwood Street to Esteban Lane, between the edge of the street pavement and the Southern Pacific Railroad right-of-way line;

259. The south side of El Paso Drive from Glenwood Street to the Franklin Canal crossing of El Paso Drive, between the edge of the street pavement and the Franklin Canal boundary fence;

260. Osborne Drive, both sides, between Mesa Street and Sunset Drive;

261. Both sides of Teodoso Drive from Pendale Drive to Leopoldo Street;

262. Alameda Avenue between Schutz Drive and Old Pueblo Road;

263. The north side of Springwood Drive, from Wedgewood Drive to a point 600 feet east thereof;

264. Bob Mitchell Drive, from Montwood Drive to Saul Kleinfeld Drive to a point 400 feet west thereof;

265. The north side of Woodrow Bean Transmountain Drive, from Alcan Street to Audobon Street;

266. Both sides of James Watt Drive, from Lee Trevino Drive to Goodyear Drive;

267. The north side of Will Ruth Drive, from Rutledge Place to a point 160 feet west thereof;

268. Lomaland Drive on the west side from Yermoland Drive to Cornelius Drive and the east side from Yermoland to a point 600 feet north thereof;

269. Both sides of Industrial Avenue from Humble Place to a point 200 feet west of Wall Road;

270. Belvidere Street from Tudor Way to De Los Santos Way, both sides;

271. Thunderbird Drive to a point 350 feet east and west of the Dew Street curbline, both sides;

272. Thunderbird Drive from Twilight Street to Caprock Drive, both sides;

273. Thunderbird Drive to a point 350 feet east of Caprock Drive, the east curbline, both sides;

274. Belvidere Street from a point 250 feet east of Via Descanso to a point 650 feet east thereof, south side only;

275. Dew Drive from Thunderbird Drive to a point 200 feet east thereof, south side only;

276. On both sides of Giles Road from Carolina Drive to Phoenix Drive;

277. The north side of Thunderbird Drive from Broadmoor Drive to a point 400 feet west thereof;

278. Both sides of Emma Way from Socorro Road to a point 350 feet south thereof;

279. Both sides of Socorro Road from Zaragoza Road to Old Pueblo Road/Gonzales Street;

280. South side of Alameda Avenue from Ysleta Lane to a point 233 feet west thereof;

281. Both sides of Edge of Texas Street from U.S. Highway 54 to a point 155 feet west thereof;

282. The east side of Eastside Road from Market Avenue to a point 200 feet north thereof;

283. Phoenix Drive from Hunter Drive to a point 200 feet east of Giles Road, both sides;

284. Both sides of Threadgill from Railroad Drive to a point 414 feet east thereof;

285. Brogan Drive from Copper Queen Drive to Hawkins Boulevard, both sides;

286. Chino Drive from Copper Queen Drive (south) to Copper Queen Drive (east), both sides;

287. Copper Queen Drive from North Loop Drive to a point 500 feet north of Chino Drive, both sides;

288. Tony Lama Street from Chino Drive to Hawkins Boulevard, both sides;

289. North side of Redd Road from Resler Drive to a point 150 feet east thereof;

290. Edgemere Boulevard between McRae Boulevard and the east city limits, with the exception of the following locations:

a. 10111 thru 10121 Edgemere Boulevard,

b. Between Limerick Drive and Shedfield Place,

c. Between Hickman Street and Ivanhoe Drive,

d. Between Lee Boulevard to a point 370 feet west of Saul Kleinfeld Drive,

e. Between Tierra Este Road to a point 400 feet west of Tierra Angel Drive;

291. Sanders Avenue from Fairfax Drive to Roanoke Drive, north side only;

292. Marr Street between Frankfort Avenue and Leeds Avenue, west side only;

293. River Avenue from Hawthorne Street to Lawton Drive, south side only;

294. Hercules Avenue from Comet Street to a point 122 feet east thereof, north side only;

295. Both sides of San Antonio Avenue from Campbell Street to Kansas Street;

296. Both sides of Myrtle Avenue from Campbell Street to Kansas Street;

297. Both sides of Campbell Street from San Antonio Avenue to Myrtle Avenue;

298. San Antonio Avenue from Florence Street to Ochoa Street, north side only;

299. Both sides of Overland Avenue from Florence Street to Ochoa Street;

300. Florence Street from San Antonio Avenue to Overland Avenue, west side only;

301. Both sides of Ochoa Street from San Antonio Avenue to Overland Avenue;

302. Tompkins Road from Fort Boulevard to Gateway South Boulevard, both sides;

303. Wyoming Avenue from the east curbline of Langtry Street to a point 60 feet east thereof, both sides;

304. Wyoming Avenue from the west curbline of Langtry Street to a point 60 feet west thereof, south side only;

305. On the following described portions of Westwind Drive:

a. Westwind Drive from Belvidere Street to a point 680 feet north thereof, west side only,

b. Westwind Drive from Belvidere Street to a point 1155 north thereof, east side only;

306. Gran Vista Drive between Lee Trevino Drive and Albert Saab Drive, both sides;

307. Albert Saab Drive between Gran Vista Drive and Gateway East Boulevard, both sides;

308. Central Avenue from Raynor Street to a point 200 feet east thereof, north side only;

309. Festival Drive on the south side from Mesa Street (SH-20) to Stanton Street and on the north side from Mesa Street to a point 950 feet east thereof;

310. Southwestern Drive from Inca Street to a point 500 feet south of Redd Road, both sides;

311. North side of Robinson Avenue, between Campbell Street and Kansas Street;

312. Southwest side of Pellicano Drive from Barranca Drive to a point 185 feet west thereof;

313. West side of Vista del Oro Drive from a point 340 feet south of the southern curb line of Vista del Sol Drive to a point 400 feet south thereof;

314. North side of Frutas Avenue, between Copia Street and Grama Street;

315. South side of Sunset Drive from Osborne Drive to a point 310 feet west thereof;

316. North side of Sunset Drive from Osborne Drive to a point 325 feet west thereof;

317. East side of Northwestern Drive from Rancho Norte Drive to a point 600 feet north thereof;

318. North side of Rancho Norte Drive from Northwestern Drive to a point 550 feet east thereof;

319. On the following described portions of Esther Lama Drive:

a. Esther Lama Drive from Zaragoza Road east to the intersection of Esther Lama Drive and Pullman Drive, south side only,

b. Esther Lama Drive from Zaragoza Road to a point 225 feet east thereof, north side only;

320. Kenworthy Drive from Woodrow Bean Transmountain Drive (Loop 375) to Diana Drive;

321. Trade Center Way from Desert Boulevard North to Northwestern Drive;

322. The south side of San Antonio Avenue from Cotton Street to a point 475 feet east thereof;

323. Mills Avenue between Ochoa Street and Virginia Street, south side;

324. The east side of Alley M from Paisano Drive to First Avenue—Alley M is located between Saint Vrain Street and Virginia Streets;

325. Collingsworth Street, between Simpia Drive and Alameda Avenue (SH-20) east side only;

326. Collingsworth Street, from Alameda Avenue (SH-20) to 100 feet south, west side only;

327. Maryland Street, between Geiger Avenue and Alameda Avenue (SH-20), west side only;

328. Geiger Avenue, between Collingsworth Street and Cargil Street, both sides;

329. Wymond Court, north side only;

330. Geranium Drive from Zaragoza Road to a point 200 feet east, both sides;

331. Cristo Viene Drive from Zaragoza Road to a point 150 feet west, both sides;

332. Lee Elder Drive from Montwood Drive to a point 280 feet north, both sides;

333. Robert Wynn Street from Montwood Drive to a point 210 feet north, both sides;

334. Robert Wynn Street from Montwood Drive to a point 370 feet south, both sides;

335. South side of Alto Rey Drive from Resler Drive to a point 100 feet east;

336. North side of Alto Rey Drive from Resler Drive to a point 125 feet east;

337. Alto Rey Drive from Resler Drive to a point 115 feet west, both sides;

338. Deleted;

339. Grama Street, both sides, from San Antonio Avenue to a point 60 feet south;

340. Deleted;

341. San Antonio Avenue, south side only, from Grama Street to a point 510 feet east;

342. San Antonio Avenue, south side only, from Grama Street to a point 73 feet west;

343. North side of Ojo De Agua Drive from Westwind Drive to a point 205 feet east;

344. Burgundy Drive between Verdum Way and a point 1,200 feet north of Escobar Drive, both sides;

345. East side of South Virginia Street from Overland Avenue South to the railroad tracks;

346. Charles Schulte from Sun Country Drive to Zaragoza Road, both sides;

347. Cielo Vista Drive from a point 120 feet south to a point 500 feet north of Avalon Drive, both sides;

348. Hague Road between Oregon Street and Mesa Street, south side;

349. Castner Drive, both sides, between Lee Trevino Drive and Kessler Drive;

350. Dorbandt Circle, from Davis Drive to a point 650 feet west thereof, south side only;

351. Heisig Avenue;

352. Lionel Drive from Wilkinson Drive to a point 100 feet north thereof Allen Bradley Drive from Wilkinson Drive to a point 100 feet south thereof;

353. Cliff Drive from Medical Center Street to a point 125 feet west, both sides, also Cliff Drive from Medical Center Street to a point 175 feet east, both sides;

354. Sun Bowl Drive from Mesa Street to a point 1,000 feet south, west side and from Mesa Street to a point 240 feet south of Kern Drive, east side;

355. Firehouse Drive from Montwood Drive to Saul Kleinfeld Drive, both sides;

356. Raynolds Street, between Montana Avenue and La Luz Avenue, east side only;

357. Sunglow Avenue from 100 feet east of Avalon Drive to a point 300 feet west thereof;

358. High Ridge Drive between Resler N. Drive and the entrance of the Westside Regional Park;

359. The east side of the alley from the 900 block of San Antonio E. Avenue to the 900 Block of Overland E. Avenue, between Saint Vrain Street and Virginia Street;

360. The north side of Stockwell Lane, from a point 420 feet to a point 520 feet east of Stanton Street;

361. Trawood Drive, between Pico Alto Drive and Yarbrough, both sides;

362. Bassett Avenue between Williams Street and Laurel Street, south side only;

363. The alley between Crosby Avenue and River Avenue, both sides;

364. Third Avenue between Virginia Street and Park Road, south side only;

365. Miranda Court;

366. Pellicano Drive, from Lomaland Drive to the east city limits; Peter Cooper Drive, from Vista Del Sol Drive to Dos Rios Drive;

367. Helen of Troy Drive, from Desert Boulevard North to a point 500 feet east of Resler Drive.

368. Trawood Drive, between Ben Hogan Drive and Estrada Drive.

369. Kerbey Avenue from Oregon Street to the alley east thereof, north side only, and from Oregon Street to a point 40 feet east thereof, south side only and from Mesa Street to a point 17 feet west thereof, south side only.

370. Latta Street between Findley Avenue and Paisano East Drive, West side.

371. Marcus Uribe Drive between Loma De Color Drive and the east City limits, both sides.

372. Sean Haggerty Drive between McCombs Drive and the north City Limits, with the exception of the north side of the 5700 block.

373. Sundance Avenue, from Menlo Avenue to a point 340 feet north thereof, east side only.

374. University Avenue, between Kansas Street and Ochoa Street, south side.

375. Oregon Street between Yandell Drive and Glory Road, both sides.

376. West Drive from a point three hundred feet southwest of Garden Place to a point seventy feet northeast, both sides.

377. Roseway Drive from Presa Place to Carnes Road, both sides.

378. Barker Road from J.C. Cramer Lane to a point 1,070 feet north, both sides.

379. Weston Brent Lane, between Trawood Drive and Lee Trevino Drive, northeast side and Weston Brent Lane between Trawood Drive to a point 245 feet west of Lee Trevino Drive, southwest side.

380. On the following described portions of Hawthorne Street:

a. Hawthorne Street from Rim Road to West Schuster Avenue, both sides, and

b. Hawthorne Street from West Schuster to Crosby Avenue, West side only.

381. Mesa Street between Main Drive and Mills Avenue, west side.

382. Oregon Street between Main Drive and Mills Avenue, east side.

383. Main Drive between Mesa Street and Oregon, south side.

384. Mills Avenue between Mesa Street and Oregon, north side.

385. Manor Place, from Alameda Avenue to a point 135 feet south thereof, west side only.

386. On the following described portions of Cross Street:

a. Cross Street between Deer Street and Sun Valley Drive, west side only, and

b. Cross Street between Deer Street and Sun Valley Drive, where the curb is intermittently extruded on the east side.

387. Schwarzkopf Drive, at the western intersection with Collin Powell Avenue along the east curb line, north for 198 feet; thence east for 1,150 feet along the curb line; thence south for 198 feet along the curb line to the eastern intersection with Colin Powell Avenue.

388. West Main Drive from El Paso Street to North Santa Fe Street, south side. (Ord. 16950 § 1, 2008; Ord. 16934 § 1, 2008; Ord. 16871 § 1, 2008; Ord. 16868 § 1, 2008; Ord. 16846 § 1, 2008; Ord. 16805 § 1, 2007; Ord. 16777 § 1, 2007; Ord. 16743 § 1, 2007; Ord. 16742 § 1, 2007; Ord. 16739 § 1, 2007; Ord. 16728 § 2, 2007; Ord. 16720 § 1, 2007; Ord. 16689 § 1, 2007; Ord. 16644 § 1, 2007; Ord. 16616 § 1, 2007; Ord. 16557 § 1, 2007; Ord. 16546 § 1, 2007; Ord. 16480 § 1, 2006; Ord. 16479 § 1, 2006; Ord. 16467 § 1, 2006; Ord. 16466 § 1, 2006; Ord. 16358 § 1, 2006; Ord. 16339 § 1, 2006; Ord. 16336 § 1, 2006; Ord. 16297 § 1, 2006; Ord. 16296 § 1, 2006; Ord. 16224 § 1, 2005; Ord. 16202 § 1, 2005; Ord. 16183 §§ 1, 2, 2005; Ord. 16174 § 1, 2005; Ord. 16173 § 1, 2005; Ord. 16160 § 1, 2005; Ord. 16067 § 1, 2005; Ord. 16049 § 1, 2005; Ord. 16000 § 1, 2005; Ord. 15920 § 1, 2004; Ord. 15921 § 1, 2004; Ord. 15970 § 1, 2004; Ord. 15913 § 1, 2004; Ord. 15902 § 1, 2004; Ord. 15861 § 1, 2004; Ord. 15860 § 1, 2004; Ord. 15859 § 1, 2004; Ord. 15817 § 1, 2004; Ord. 15797 § 1, 2004; Ord. 15795

§ 1, 2004; Ord. 15794 § 1, 2004; Ord. 15793 § 1, 2004; Ord. 15792 § 1, 2004; Ord. 15766 § 1, 2004; Ord. 15761 § 1, 2004; Ord. 15697 § 1, 2004; Ord. 15678 § 1, 2004; Ord. 15673 § 1, 2004; Ord. 15562 § 1, 2003; Ord. 15549 § 1, 2003; Ord. 15548 § 1, 2003; Ord. 15547 § 1, 2003; Ord. 15496 § 1, 2003; Ord. 15444 § 1, 2003; Ord. 15400 § 1, 2003; Ord. 15396 § 1, 2003; Ord. 15395 § 1, 2003; Ord. 15394 § 1, 2003; Ord. 15279 § 1, 2002; Ord. 15278 § 1, 2002; Ord. 15269 § 1, 2002; Ord. 15235 § 1, 2002; Ord. 15231 § 1, 2002; Ord. 15092 § 1, 2002; Ord. 15091 § 1, 2002; Ord. 15090 § 1, 2002; Ord. 14974 § 1, 2001; Ord. 14957 § 1, 2001; Ord. 14953 § 1, 2001; Ord. 14952 § 1, 2001; Ord. 14951 § 1, 2001; Ord. 14905 § 1, 2001; Ord. 14904 § 1, 2001; Ord. 14890 § 1, 2001; Ord. 14876 § 1, 2001; Ord. 14867 § 1, 2001; Ord. 14725 § 1, 2000; Ord. 14717 § 1, 2000; Ord. 14638 § 1, 2000; Ord. 14633 § 1, 2000; Ord. 14632 § 1, 2000; Ord. 14631 § 1, 2000; Ord. 14612 § 1, 2000; Ord. 14567 § 1, 2000; Ord. 14559 § 1, 2000; Ord. 14558 § 1, 2000; Ord. 14557 § 1, 2000; Ord. 14556 § 1, 2000; Ord. 14531 § 1, 2000; Ord. 14310 § 1, 1999; Ord. 14245 § 1, 1999; Ord. 13697 § 1, 1998; Ord. 13500 § 1, 1998; Ord. 13499 § 1, 1998; Ord. 13466 § 1, 1997; Ord. 13369 § 1, 1997; Ord. 13262 § 1, 1997; Ord. 13225 § 1, 1997; Ord. 13224 § 1, 1997; Ord. 13210 § 1, 1997; Ord. 13206 § 1, 1997; Ord. 13205 § 1, 1997; Ord. 12962 § 1, 1996; Ord. 12856 § 1, 1996; Ord. 12778 § 1, 1996; Ord. 12582 § 1, 1995; Ord. 12346, 1995; Ord. 12314, 1995; Ord. 11513 § 1, 1993; Ord. 11348 § 1, 1993; Ord. 11273 § 1, 1992; Ord. 11121 § 1, 1992; Ord. 11090 § 1, 1992; Ord. 10986 § 1, 1992; Ord. 10965 § 1, 1992; Ord. 10939 § 1, 1992; Ord. 10916 § 1, 1992; Ord. 10692 § 1, 1991; Ord. 10487 § 1, 1991; Ord. 10437 § 1, 1991; Ord. 10308 § 1, 1990; Ord. 10261 § 1, 1990; Ord. 10088 § 1, 1990; Ord. 10084 § 1, 1990; Ord. 10048 § 1, 1990; Ord. 10041 §§ 1, 2, 1990; Ord. 9753 § 1, 1989; Ord. 9695 § 1, 1989; Ord. 9680 § 1, 1989; Ord. 9675 § 1, 1989; Ord. 9655 § 1, 1989; Ord. 9583 § 1, 1988; Ord. 9578 § 1, 1988; Ord. 9549 § 1, 1988; Ord. 9548 § 1, 1988; Ord. 9458 § 1, 1988; Ord. 9450 § 1, 1988; Ord. 9333 § 1, 1988; Ord. 9278 § 1, 1988; Ord. 9247 § 1, 1987; Ord. 9246 § 1, 1987; Ord. 9058 § 1, 1987; Ord. 9057 § 1, 1987; Ord. 9029 § 1, 1987; Ord. 8748 § 1, 1986; Ord. 8713 § 1, 1986; Ord. 8648 § 1, 1986; Ord. 8635, 1986; Ord. 8617 § 1, 1986; Ord. 8530 § 1, 1985; Ord. 8493, 1985; Ord. 8451 § 1, 1985; Ord. 8432 § 3, 1985; Ord. 8426 § 1, 1985; Ord. 8377 § 1, 1985; Ord. 8353 § 1, 1985; Ord. 8328 § 1, 1985; Ord. 8309, 1985; Ord. 8282, 1985; Ord. 8241 §§ 1—3, 1984; prior code § 20-179)

(Ord. 17032, § 1, 12-2-2008; Ord. No. 17053, § 1, 1-13-2009; Ord. No. 17054, § 1, 1-13-2009; Ord. No. 17068, § 1, 2-3-2009; Ord. No. 17084, § 1, 3-24-2009; Ord. No. 17103, § 1, 4-7-2009; Ord. No. 17150, § 1, 7-21-2009; Ord. 17155, § 1, 8-4-2009; Ord. No. 17240, § 1, 11-17-2009; Ord. No. 17266, §§ 1, 2, 1-12-2010; Ord. No. 17297, § 1, 3-23-2010; Ord. No. 17369, § 1, 8-10-2010; Ord. No. 17497, § 1, 2-8-2011; Ord. No. 17594, § 1, 6-28-2011; Ord. No. 17628, § 1, 8-16-2011; Ord. No. 17733, § 2, 2-21-2012; Ord. No. 17866, § 1, 9-11-2012; Ord. No. 17945, § 1, 2-5-2013; Ord. No. 18010, § 1, 5-7-2013; Ord. No. 18028, § 1, 6-4-2013; Ord. No. 18269, § 1, 10-21-2014; Ord. No. 18290, § 1, 12-16-2014; Ord. No. 18535, § 1, 6-28-2016; Ord. No. 18573, §§ 2, 3, 9-20-2016; Ord. No. 18593, § 1, 11-1-2016; Ord. No. 18719, § 1, 8-22-2017; Ord. No. 18873, §§ 1—3, 11-13-2018; Ord. No. 19000, § 1, 10-29-2019; Ord. No. 19197, § 1, 6-8-2021; Ord. No. 19252, § 1, 10-26-2021; Ord. No. 19273, § 1, 12-7-2021; Ord. No. 19309, § 3, 3-15-2022; Ord. No. 19321, § 1, 4-12-2022; Ord. No. 019675, § 2, 9-24-2024)

12.88.040 Schedule IV—Parking prohibited during certain hours on certain streets.

In accordance with Section 12.52.030, when signs are erected giving notice thereof no person shall park a vehicle between the hours specified in this section on any day except Sundays and legal holidays within the district or upon any of the streets or parts of streets as follows:

A. No parking, 7:00 a.m. to 9:00 a.m.:

1. Cotton Street between Missouri Avenue and Arizona Avenue on either side;

2. Cotton Street between Texas Avenue and Myrtle Avenue on the west side;

3. The south side of Overland Avenue between El Paso and Mesa Streets;

4. Arizona Avenue, north side from Cotton Street east approximately 200 feet;

5. On the south side of El Paso Drive, extending approximately 166 feet west from the west curbline of Chelsea Street;

6. On the north side of El Paso Drive, extending approximately 130 feet west from the west curbline of Chelsea Street;

7. Raynolds Street from Bataan Circle to a point 170 feet north thereof, west side only.

B. No parking, 4:00 p.m. to 6:00 p.m.:

1. Cotton Street from Missouri Avenue to Arizona Avenue on either side;

2. Cotton Street between Texas Avenue and Myrtle Avenue on the east side;

3. The south side of Overland Avenue between El Paso and Mesa Streets;

4. Arizona Avenue, north side from Cotton Street east approximately 200 feet;

5. On the south side of El Paso Drive, extending approximately 166 feet west from the west curbline of Chelsea Street;

6. On the north side of El Paso Drive, extending approximately 130 feet west from the west curbline of Chelsea Street;

7. Raynolds Street from Bataan Circle to a point 170 feet north thereof, west side only.

C. No parking, 8:00 a.m. to 5:00 p.m.:

1. Reserved.

D. No parking, 8:00 a.m. to 6:00 p.m.:

1. The south side of Rosa Avenue between Piedras Street and Raynor Street.

E. No parking, 1:00 a.m. to 8:00 a.m.:

1. The south side of Main Drive between San Francisco Avenue and El Paso Street.

F. No parking, 3:00 a.m. to 6:00 a.m.:

1. On all streets or parts of streets described in Section 12.88.130.

G. No parking, 8:00 a.m. to 4:00 p.m.:

1. On either side of Circle Drive;

2. Washington Street, west side only, from a point 75 feet north of Paisano Drive to a point 415 feet north thereof.

H. No parking, 7:00 a.m. to 5:00 p.m.:

1. Roswell Street, from a point 257 feet south of Gateway East Boulevard to a point 405 feet south of Gateway East Boulevard, west side only;

2. Cloudview Drive from a point 350 feet west of Northwind Drive to a point 800 feet west thereof; south side;

3. Commerce Avenue between Humble Place and Hawkins Boulevard, both sides.

4. Ascarate Street from Alameda Avenue to a point 400 feet south of Alameda, east side only;

I. No parking, 6:00 a.m. to 6:00 p.m.:

1. On the east side of Sun Bowl Drive from a point 380 feet south of Kern Drive to 600 feet south thereof.

J. No parking, 7:00 a.m. to 4:00 p.m.:

1. On the east side of Louisiana Street between McKelligon Canyon and a point 185 feet south thereof;

2. Reserved;

3. Reserved;

4. Reserved;

5. Reserved;

6. Fairfax Street from Sanders Avenue to Downs Court, east side only;

7. North side of San Antonio Avenue from Florence Street to Ochoa Street;

8. East side of Ochoa Street from San Antonio Avenue to Overland Avenue;

9. Linum Drive, from McRae Boulevard to a point 800 feet east, south side only.

10. Hadlock Street from a point 50 feet south of Alameda Avenue to Dunne Avenue, west side only. (Ord. 16728 § 1, 2007; Ord. 16645 § 1, 2007; Ord. 16597 § 1, 2007; Ord. 16468 § 1, 2006; Ord. 16397 § 1, 2006; Ord. 16157 § 1, 2005; Ord. 16151 § 1, 2005; Ord. 16085 § 1, 2005; Ord. 16055 § 1, 2005; Ord. 15939 § 1, 2004; Ord. 15886 § 1, 2004; Ord. 15393 § 1, 2003; Ord. 15271 § 1, 2002; Ord. 15236 § 1, 2002; Ord. 14975 § 1, 2001; Ord. 14866 § 1, 2001; Ord. 14822 § 1, 2001; Ord. 14780 § 1, 2001; Ord. 14724 § 1, 2000; Ord. 14208 § 1, 1999;

Ord. 14193 § 1, 1999; Ord. 14075 § 1, 1999; Ord. 12848 § 1, 1996; Ord. 11759 § 1, 1994; Ord. 9003 § 1, 1987; Ord. 8353 § 2, 1985; prior code § 20-180) (Ord. No. 17067, § 1, 2-3-2009; Ord. No. 17289, § 1, 3-16-2010)

12.88.041 Schedule IVA—Parking prohibited during certain hours—School days only.

When signs are erected giving notice thereof no person shall park a vehicle between the hours specified herein on any day except Saturdays, Sundays and legal holidays within the district or upon any of the streets or parts of streets as follows:

A. No parking, 7:00 a.m. to 4:00 p.m. on any street or parts of streets from Monday through Friday on any regularly scheduled School Day.

1. Santa Maria Drive, between La Paz Drive and Venado Drive; south side only;
2. Ben Proctor Drive;
3. Reserved;
4. Reserved;
5. Reserved;
6. La Subida Drive, between Monte Mar Place and a point 285 feet west of Andalucia Drive thereof, south side only;
7. Sara Danielle Drive;
8. Dos Rios Drive, between a point 50 feet west of Chato Villa Drive and Peter Cooper Drive;
9. Elon Lane;
10. Mark Wallace Lane;
11. McVeigh Way;
12. Sam Horrell Way;
13. Missy Yvette Drive from Pellicano Drive to Ben Proctor Drive on both sides, and Missy Yvette north of Ben Proctor, east side from addresses 1444 through 12148, and the west side from addresses 1445 through 12153;
14. Reserved;
15. Reserved;
16. Anise Drive, between Lee Trevino Drive and Montwood Drive, west side only;
17. Tierra Azteca Drive between Tierra Este Road and Tierra Meca Drive;
18. Tierra Plata Drive between Tierra Azteca Drive and Tierra Cobre Drive;
19. Tierra Real Way;
20. Tierra Rey Court;
21. Tierra Nevada, between Edgemere and Tierra Espada, both sides.
22. Maya Lizabeth Place;
23. Breean Isabell Place;
24. Tierra Inca Drive between Tierra Este Drive and Pablo Sanchez Place;
25. Knorr Place.

B. No parking, 7:00 a.m. to 5:00 p.m. on any street or parts of streets from Monday through Friday on any regularly scheduled school day.

1. 12100—12141 Frank Cordova Circle;
2. Mike Andrade Place;
3. Deleted;
4. 2600 Tierra Cadiz Ct., from John Hayes St. to Tierra Murcia St. (Ord. 16757 § 1, 2007; Ord. 16617 § 1, 2007; Ord. 16596 § 1, 2007; Ord. 16590, 2007; Ord. 16469 § 1, 2006)

(Ord. No. 17363, § 1, 7-27-2010; Ord. No. 17562, § 1, 5-17-2011; Ord. No. 18162, § 1, 4-15-2014; Ord. No. 18364, § 1, 6-2-2015; Ord. No. 19309, §§ 1, 2, 3-15-2022; Ord. No. 019575, § 1, 12-5-2023; Ord. No. 019601, § 1, 3-12-2024)

12.88.050 Schedule V—Stopping, standing or parking prohibited during certain hours on certain streets.

In accordance with Section 12.52.040 and when signs are erected giving notice thereof no person shall stop, stand or park a vehicle between the hours specified herein of any day except Sundays and legal holidays within the district or upon any of the streets or parts of streets as follows:

1. Mesa Street between a point 100 feet east of Cloudview Drive and a point 300 feet west thereof, both sides, at all hours;
2. Parcel 1A (4.121 acres), a part of Tract 5A, Block 41, Ysleta Grant, City of El Paso, El Paso County, Texas, at all hours;
3. North side of Cosmos Drive between McRae Boulevard and Catnip Street during the hours 7:00 a.m. to 9:00 a.m. and 2:00 p.m. to 4:00

p.m., Monday to Friday. (Ord. 16437 § 1, 2006; Ord. 10609 § 2, 1991; prior code § 20-181)

12.88.060 Schedule VI—Parking time limited on certain streets.

In accordance with Section 12.52.050 and when signs are erected giving notice thereof, no person shall park a vehicle for a period of time longer than that specified in this section between the hours specified within the district or upon any of the streets or parts of streets as follows:

A. Parking time limit two hours between 8:00 a.m. and 6:00 p.m., except Sundays and legal holidays:

1. Beginning at the intersection of St. Vrain Street and Texas Avenue, thence easterly along the north line of Texas Avenue to the west line of Octavia Street; thence southerly to the south line of San Antonio Avenue; thence westerly to the east line of St. Vrain Street to joint the easterly boundary line of the area known as Zone B as established in Section 12.88.130;

3. Rio Grande Avenue, both sides, from Oregon Street to Mesa Street;

4. Deleted;

5. Wyoming Avenue, both sides, from Campbell Street to Ochoa Street;

6. Montana Avenue, both sides, from Campbell Street to St. Vrain Street;

7. Kansas Street, both sides, from Montana Avenue to Rio Grande Avenue;

8. Deleted;

9. Ochoa Street, both sides, from Yandell Drive to Rio Grande Avenue;

10. Montana Avenue, both sides, from Raynor Street to San Marcial Street;

11. Alameda Avenue, both sides, from Harris Street to Zaragosa Road;

12. North side of Yandell Drive between Maple Street and Birch Street;

13. Myrtle Avenue, both sides, from Dallas Street to Williams Street;

14. The north side of Pershing Drive from Piedras Street to a point 154 feet west of the Piedras Street;

15—17. Reserved;

18. Cotton Street, west side only, from Magoffin Avenue to Myrtle Avenue;

19. The south side of Montana Avenue extending from Hardaway Street approximately 262 feet east;

20. The south side of Texas Avenue from the existing bus zone on Texas Avenue at Laurel Street to Eucalyptus Street;

21. The north side of Overland Street between Hills Street and Saint Vrain Street;

22. The north side of Yandell Drive between Cotton Street and Eucalyptus Street;

23. East side of Florence Street from the north curbline of Montana Avenue to a point 120 feet north thereof;

24. Yandell Drive, north side, Florence Street and Virginia Street;

25. Landell Drive, south side, between Florence Street and Virginia Street;

26. Texas Avenue, both sides, from Dallas Street to Laurel Street;

27. Pershing Drive between Cedar Street and Piedras Street, south side only;

28. Alameda Avenue, north side, between Copia Street and Grama Street;

29. The east side of Grama Street from the south curbline of Montana Avenue to a point 120 feet south thereof;

30. Hardaway Street between Montana Avenue and a point 150 feet north thereof, east side only;

31. Tularosa Avenue between Piedras Street and a point 135 feet east thereof, south side only;

32. Brown Street between Yandell Boulevard and a point 75 feet north thereof, west side only;

33. Poplar Street between Yandell Boulevard and a point 120 feet south thereof, west side only;

34. Octavia Street from Yandell Drive to a point 100 feet north thereof, west side only;

35. Yandell Drive from a point 140 feet west of Octavia Street to a point 210 feet west thereof, north side only;

36. Texas Avenue from Walnut Street to Palm Street, south side only;

37. Texas Avenue from Willow Street to a point 100 feet east thereof, north side only;

38. The north side of Texas Avenue between Walnut Street and Palm Street;

39. Both sides of Myrtle Avenue from Dallas Street west to the railroad grade crossing;

40. Reserved;

41. North side of Yandell Drive from Rosewood Street to a point 135 feet west thereof;

42. East side of Dallas Street between Myrtle Avenue to alley south thereof;

43. Ochoa Street, east side only, between Montana Avenue to Rio Grande Avenue;

44. Virginia Street, west side only, between Montana Avenue to Rio Grande Avenue;

45. Fullan Street, west side, between Alameda Avenue and Albro Court;

46. On west side of the 100 block of Walnut Street from the intersection of Texas and Walnut, south to the alley;

47. 100 block of North Copia;

48. Piedras Street, east side, from Cypress Avenue south to alley;

49. Cypress Avenue, south side, from Piedras Street to a point 140 feet east thereof;

50. East side of Huckleberry Street from Montana Avenue to a point 400 feet south thereof;

51. The south side of Bassett Avenue from Cotton Street to a point 85 feet east thereof;

52. The east side of Piedras Street from the northerly alley line between Cypress Avenue and Findley Avenue to a point 40 feet north thereof;

53. The west side of Dallas Street from Myrtle Avenue to the alley south thereto;

54. Texas Avenue, north side only from Octavia Street to Cotton Street;

55. The north side of Cincinnati Avenue from Mesa Street to Stanton Street;

56. The south side of Cincinnati Avenue from Mesa Street to a point 29 feet west of Stanton Street;

57. Texas Avenue from Cotton Street to a point 300 feet east thereof, north side only;

58. Boston Avenue from Stanton Street to a point 120 feet west thereof;

59. Lafayette Avenue from Alameda Avenue to a point 213 feet northeast; westside only.

B. Parking time limited to two hours everyday:

1. West side of Sumac Drive from a point 334 feet north of Gateway West Boulevard to Boxwood Circle;

2. The west side of Florence Street from the south curbline of Rio Grande Avenue to a point 84 feet south thereof;

3. The east side of Hudspeth Place from the south curbline of San Antonio Avenue to a point 75 feet south thereof;

4. The south line of San Antonio Avenue from the east curbline of Hudspeth Place to a point 54 feet east thereof;

5. The south side of Magoffin Avenue from a point 99 feet east of the east curbline of Laurel Street to a point 63 feet east thereof;

6. The south side of Myrtle Avenue from the east curbline of Brown Street to a point 60 feet east thereof;

7. Copia Street, cast side, from Clifton Avenue to Hueco Avenue;

8. Surety Lane from a point 135 feet south of Gateway East Boulevard to a point 90 feet south thereof, east side only;

9. The north side of Pershing Drive between San Marcial Street and Raynor Street.

C. Parking limited to visitors to Magoffin Home, not to exceed two hours on all days:

1. Magoffin Avenue, south side, from a point 100 feet west of Noble Street to a point 260 feet west thereof.

D. Parking time limit one hour between 8:00 a.m. and 5:00 p.m., except Saturdays, Sundays and legal holidays:

1. Yandell Avenue between Cotton Street and Williams Street, both sides;

2. The south side of Yandell Drive from the western property line of 2512 Yandell Drive, east 88 feet to the eastern property line of 2514 Yandell Drive.

3. Between a point 100 feet north and south of Alameda Avenue, between Buena Vista Drive and Delta Drive.

E. Parking time limit two hours between 8:00 a.m. and 6:00 p.m. every day:

1. The west side of Medical Center Street between a point 160 feet north of Cliff Avenue and a point 355 feet north thereof;

2. The east side of Medical Center Street between a point 30 feet north of Cliff Avenue and a point 180 feet north thereof;

3. The west side of Medical Center Street between a point 535 feet north of Cliff Avenue and a point 660 feet north thereof;

4. The east side of Medical Center Street between Curie Drive and Murchison Street;

5. The west side of Medical Center Street to a point 339 feet south of Murchison Street;

6. The south side of Alameda Avenue between Stevens Street and Latta Street;

7. The south side of Rim Road from Mesa Street 150 feet east to alley.

F. Parking time limit to thirty minutes only between 7:00 a.m. and 4:00 p.m., school days only:

1. Dunoon Drive, from McRae Boulevard to a point 635 feet west thereof, north side only.

G. Parking time limited to thirty minutes only between 8:00 a.m. and 5:00 p.m., except Sundays and legal holidays:

1. Maple Street from Montana Avenue, to a point 60 feet south thereof, east side only. (Ord. 16545 § 1, 2007; Ord. 16338 § 1, 2006; Ord. 16337 § 1, 2006; Ord. 16206 § 1, 2005; Ord. 15836 § 1, 2004; Ord. 15370 § 1, 2003; Ord. 14076 § 1, 1999; Ord. 12596 § 1, 1995; Ord. 12595 § 1, 1995; Ord. 12552 § 1, 1995; Ord. 12436 § 1, 1995; Ord. 12389, 1995; Ord. 12356 § 1, 1995; Ord. 12347 § 1, 1995; Ord. 11643 § 2, 1993; Ord. 10974 § 1, 1992; Ord. 10295 § 1, 1990; Ord. 10027 § 1, 1990; Ord. 9532 § 1, 1988; Ord. 9245 § 1, 1987; Ord. 9067 § 1, 1987; Ord. 8942 § 1, 1987; Ord. 8778 § 1, 1986; Ord. 8590, 1986; Ord. 8480, 1985; Ord. 8389, 1985; Ord. 8308, 1985; prior code § 20-182)
(Ord. No. 17065, § 1, 2-3-2009; Ord. No. 17943, § 1, 2-5-2013; Ord. No. 18874, § 1, 11-13-2018)

12.88.070 Schedule VII—Heavy hauling prohibited.

Except as provided in Section 12.40.030(B), no person shall operate any vehicle in excess of twenty-six feet in length, eight feet in width or thirteen feet six inches in height within the districts or upon any of the streets or parts of streets as follows:

1. Within the central traffic district as defined in this chapter;

2. Rio Grande Avenue between Stanton Street and Kansas Street;

3. Arizona Avenue between Stanton Street and Kansas Street;

4. Pompano Avenue, between Railroad Drive and McCombs Street;

5. Cuba Drive between Roswell Road and Hunter Drive;

6. Roswell Road between Cuba Drive and Pima Lane;

7. Hawkins Boulevard between Montana Avenue and Viscount Boulevard;

8. Threadgill Avenue between Railroad Drive and McCombs Street;

9. Pickerel Drive between McCombs Street and Pompano Avenue;

10. Regulus Drive between Railroad Drive and McCombs Street;

11. Manila Drive from McCombs Street to Bluewing Drive;

12. Weiland Way between Airport Road and the easterly boundary at Fort Bliss Military Reservation;

13. Mulberry Avenue between Doniphan Drive and Montoya Drive;

14. Camino Real between Montoya Drive and the El Paso city limits, which coincides with the Texas-New Mexico state line;

15. Vista Del Rey Drive between Vista Clara Drive and Sierra Fria Court;

16. Dale Road from North Loop to Nichols Road;

17. Crestmont Drive from Mesa Street to Sunland Park Drive;

18. Wheeling Street from Alabama to Piedras;

19. Lee Elder Drive between Montwood Drive and Sam Snead Drive;

20. Cleveland Avenue from Gateway Boulevard East to Marlow Street;

21. Yandell Avenue from Gateway Boulevard East to Marlow Street;

22. Franklin Drive between Dale Road and Carolina Drive;

23. Glenwood Drive between Alameda Avenue and Delta Drive;

24. Buena Vista between Alameda Avenue and Delta Drive;

25. Giles Road between Carolina Drive and I-10;

26. Lomaland Drive between Burnham Road and North Loop Drive;

27. Little Flower Road from the Lincoln-Playa Drain to Ben Swain Drive;

28. George Orr Road from Peach Tree Lane to Ben Swain Drive;

29. Sparrow Road from George Orr Road to Ben Swain Drive;

30. Awbrey Street from Alameda Avenue to Auburn Road;

31. Collingsworth Street from Alameda Avenue to Delta Drive;

32. Maryland Street from Alameda Avenue to Simpia Drive;

33. Pierce Avenue between Alabama Street and Dyer Street;

34. Geronimo Drive from Gateway Boulevard East to Trowbridge Drive;

35. Pendale Road from North Loop Drive to Roseway Drive;

36. Mimosa Street from Carolina Drive to Midway Drive;

37. San Jose Road between Emerson Street and Yarbrough Drive;

38. Knights Drive between Midway Drive and Riverside Drive;

39. Lakehurst Road between Thorn Avenue and Belvidere Street;

40. Pascodale Road between Alameda Avenue and Independence Drive;

41. Lafayette Drive between Alameda Avenue and Yarbrough Drive;

42. Ledo Place, between Durazno Avenue and Gateway East Boulevard;

43. Woolridge Drive between North Loop Drive and Stiles Drive;

44. Franklin Road from Carolina Drive to Cadwallader Drive;

45. Cadwallader Drive from Alameda Avenue to Franklin Road;

46. Altura Avenue between Copia Street and Alabama Street;

47. Jim Thorpe Drive from Vista Del Sol Drive to Dick Mayers Drive;

48. Dick Mayers Drive from Jim Thorpe Drive to Marlys Larson Street;

49. Whittier Drive between Alameda Avenue and Independence Drive;

50. Dale Douglas Drive between Vista Del Sol Drive and Common Drive;

51. Common Drive between Vista Del Sol Drive and Bessemer Drive;

52. Clark Road from Trowbridge Road to Geronimo Drive;

53. Gus Rallis Drive between Gateway East Boulevard and Redd Road;

54. Borrett Street from North Loop Drive to Reindeer Avenue;

55. St. Marys Drive from North Loop Drive to Lasso Circle;

56. Clifford Court from Niles Street to Reindeer Avenue;

57. New Haven Drive from Wells Road to Lasso Circle;

58. Van Haselen Court from Pendale Road to Lasso Circle;

59. Memphis Avenue between Pershing Drive and Gateway Boulevard South;

60. Nashville Avenue between Pershing Drive and Gateway Boulevard South;

61. Frankfort Avenue between Pershing Drive and Gateway Boulevard South;

62. Delta Drive between Gateway Boulevard North and Fonseca Drive;

63. San Jose Road from Niles Street to Yarbrough Drive;

64. Cinecue Way from Yarbrough Drive to Starr Avenue;

65. Loma Verde Drive, from a point three hundred feet north of Pine Springs Drive to a point eight hundred feet north of Rancho Grande Drive;

66. Abraham Court one hundred forty feet south of Alameda Avenue to Canary Drive;

67. Great Bear Court;

68. Piedras Street between Paisano and Great Bar Court;

69. Rosa Avenue between Paisano Drive and Glenwood Drive;

70. Frutas Avenue between Paisano Drive and Glenwood Drive;

71. Dailey Avenue between Paisano Drive and Glenwood Drive;

72. Starr Avenue from Yarbrough Drive to Greggerson Drive;

73. Lowd Avenue from Yarbrough Drive to Cinecue Way;

74. Fresno Drive from Yarbrough Drive to Starr Avenue;

75. Within the South El Paso district as defined in this chapter;

76. Scott Simpson Drive from Gene Torres Drive to 100 feet west of Greg Powers Drive;

77. Stanley Street from Gateway East to Yermoland Drive;

78. Carnes Road from Alameda Avenue to Socorro Road;

79. Montoya Drive from Country Club Road to a point 270 feet east of Oleaster Drive;

80. Lilac Way from Carolina Drive to Mauer Road;

81. Bucher Road from Stiles Drive to North Loop Drive;

82. Within the Piedras-Alameda district as defined in this chapter;

83. Presa Place from Alameda Avenue to Roseway Drive;

84. Tampa Avenue from Marlow Road to Frederick Street;

85. Kenworthy Street from Woodrow Bean Transmountain Drive to Patriot Freeway;

86. Glenwood Street from Beacon Avenue to Webster Avenue;

87. Roseway Drive, 850 feet east of Candelaria Street to Carnes Drive;

88. Arvin Circle from Yarbrough Drive to Cooley Avenue;

89. Arce Drive, between Borderland Road and Tarango Street;

90. South Mesa Hills Drive, between a point 1,100 feet west of Bluff Ridge Drive and the northern end of South Mesa Hills Drive;

91. Bluff Ridge Drive between its intersection with South Mesa Hills Drive and the northern end of Bluff Ridge Drive; 12.88.070

92. Frederick Street from Trowbridge Drive to Ybarra Court;

93. Beacon Avenue between Glenwood Street and Paisano Drive;

94. Glenwood Street between Beacon Avenue and a point 100 feet north of Welch Avenue;

95. Valley View Drive between Yarbrough Drive and Greggerson Drive;

96. Harris Street between Zaragoza Road and Alameda Avenue;

97. Glenwood Street from Alameda Avenue to El Paso Drive;

98. Navajo Drive from Mescalero Drive to Sioux Drive;

99. Clark Street from Delta Drive to Alameda Avenue;

100. Carolina Drive from Alameda Avenue to Mimosa Street;

101. Chelsea Drive from Timberwolf Drive to Montana Avenue;

102. Valverde Drive from Delta Drive to Alameda Avenue;

103. Lee Trevino Drive from Montwood Drive to Montana Avenue;

104. George Dieter Drive from Zaragoza Drive to Montana Avenue;

105. Yarborough Drive from Montana Avenue to Border Highway;

106. Hunter Drive from IH-10 to North Loop Drive; and

107. Raynolds Drive from Hastings Drive to IH-10. (Ord. 11742 § 1, 1994; Ord. 11398 § 1, 1993; Ord. 11326 § 1, 1993; Ord. 11317 § 1, 1993; Ord. 11311 § 1, 1993; Ord. 11274 § 1, 1993; Ord. 11237 § 1, 1992; Ord. 11209 § 1, 1992; Ord. 11165 § 1, 1992; Ord. 11136 § 1, 1992; Ord. 11122 § 1, 1992; Ord. 11089 § 1, 1992; Ord. 11071 § 3, 1992; Ord. 11062 § 1, 1992; Ord. 11012 § 1, 1992; Ord. 10987 § 1, 1992; Ord. 10957 § 3, 1992; Ord. 10908 § 1, 1992; Ord. 10892 § 1, 1992; Ord. 10832 § 1, 1992; Ord. 10755 § 1, 1991; Ord. 10690 § 1, 1991; Ord. 10676 § 1, 1991; Ord. 10647 § 1, 1991; Ord. 10540 § 1, 1991; Ord. 10260 § 1, 1990; Ord. 10259 § 1, 1990; Ord. 10236 § 1, 1990; Ord. 10188, 1990; Ord. 9869 § 1, 1989; Ord. 9558 § 1, 1988; Ord. 9371 § 1, 1988; Ord. 9244 § 1, 1987; Ord. 8674 § 1, 1986; Ord. 8640 § 1, 1986; Ord. 8687, 1985; Ord. 8383, 1985; prior code § 20-183)

12.88.071 Schedule VIIA—Truck traffic prohibited.

In accordance with Section 12.40.030C, no person shall operate any truck, with or without a trailer, including pickup trucks, exceeding an overall length of eighteen feet within the districts or upon any of the streets or parts of streets as follows:

1. Pebble Beach Drive from Shadow Mountain Drive to its northern intersection with Burning Tree Drive. (Ord. 9555 § 1, 1988)

12.88.072 Schedule VIIB—Heavy hauling prohibited between eight p.m. and six a.m.

In accordance with Section 12.40.030D, no person shall operate any vehicle in excess of the dimensions specified in said section between eight p.m. and six a.m. within the districts or upon any of the streets or parts of streets as follows:

1. Carl Longuemare Road from eight hundred fifteen feet south of Americas Avenue Loop (Loop 375) to Winn Road. (Ord. 9556 § 1, 1988)

12.88.080 Schedule VIII—Truck routes—General.

In accordance with Section 12.40.090 and when signs exist giving notice thereof, no person shall operate any motor vehicle in excess of the dimensions specified in the section except upon any of the following streets or parts of streets; and furthermore, in accordance with Section 12.40.140 and when signs exist giving notice thereof, no person shall operate any vehicle whose weight and lading criteria fall within those specified in the section except upon any of the following streets or parts of streets:

1. Airport from Montana to Fred Wilson;
2. Airway from IH-10 to Airport;
3. Alabama from McKelligon to Fred Wilson;
4. Alameda from Paisano to the city limits;
5. Americas from Zaragoza (S) to IH-10;
6. Artcraft from Doniphan to TH-10;
7. Border Highway from Santa Fe to Zaragoza;
8. Carolina from Alameda to North Loop;
9. Castner from Pendale to Zaragoza;
10. Clark from Trowbridge to El Paso;
11. Copia from Paisano to Montana;
12. Delta from Trowbridge to Alameda;
13. Desert North from Mesa to Transmountain;
14. Desert South from Transmountain to Mesa;
15. Doniphan from Transmountain to Racetrack (S);
16. Dyer from Fred Wilson to city limits;
17. El Paso Drive from Alameda (W) to Clark;
18. Executive Center from Paisano to Mesa;
19. Fonseca from Border Highway to Alameda;
20. Fred Wilson from Alabama to Airport Road;
21. Gateway East from Dallas to city limits;
22. Gateway North from Delta to Paisano and from;
23. Fred Wilson to city limits;
24. Gateway South from city limits to Fred Wilson;
25. Gateway West from city limits to Missouri;
26. Hawkins from Viscount to North Loop;
27. IH-10 from west city limits to east city limits;
28. IH-10 from IH-10 to Paisano;
29. Joe Battle from IH-10 to Railroad;
30. Lee Trevino from IH-10 to Montwood;
31. Lomaland from Rojas to IH-10;
32. Marshall from Fred Wilson to Railroad;
33. Martin Luther King, Jr. from Stan Roberts, Sr., to city limits;
34. McCombs from Dyer to Stan Roberts, Sr.;
35. McKelligon Canyon from quarry to Alabama;
36. McRae from IH-10 to Montana;
37. Mesa from Doniphan to Executive Center;
38. Montana from Piedras to city limits;
39. Montwood from McRae to Lee Trevino;
40. North Loop from Trowbridge to city limits;
41. Paisano from Sunland Park to Montana;
42. Pendale from IH-10 to Castner;
43. Piedras from Paisano to Montana;
44. Railroad from Fred Wilson to Dyer;
45. Resler from IH-10 to Mesa;
46. Rojas from Lomaland to Joe Battle;
47. Santa Fe from Yandell to Border Highway;
48. Socorro from Alameda to city limits;
49. Stan Roberts from Dyer to Martin Luther King, Jr;
50. Sunland Park from Doniphan to Mesa;
51. Tony Lama from Hawkins to IH-10;
52. Transmountain from Railroad to Doniphan;
53. Trowbridge from Montana to North Loop;
54. US-54 from Border Highway to city limit;
55. Zaragoza from the international bridge to;

56. Americas and from North Loop to Montana. (Ord. 13561 § 3, 1998)

12.88.081 Reserved.

Editor's note—Ord. No. 17290, § 2, adopted March 16, 2010, repealed § 12.88.081, which pertained to Schedule VIIIA—Common carrier passenger route established and derived from Ord. 16149, § 1, 2005.

12.88.110 Schedule IX—Special truck routes for hazardous material-carrying vehicles.

In accordance with Section 12.40.100 and when signs are erected giving notice thereof, the type of vehicle described in Section 12.40.100 shall be permitted to use the following named streets or parts of streets and no others, except as allowed in Section 12.40.110 of this code:

1. Interstate Highway 10 between east city limits and north city limits (New Mexico State Line);

2. Interstate Highway 110 between Interstate 10 and south city limits (International Boundary at Cordova Port-of-Entry: Bridge of the Americas);

3. Patriot Freeway (U.S. 54) between Border Highway (Loop 375) and north city limits (New Mexico State Line);

4. Loop 375 between U.S. 54 (Patriot Freeway) and Railroad Drive.

5. Americas Avenue (Loop 375 Frontage) between Zaragoza Road and Interstate Highway 10.

6. Joe Battle Boulevard (Loop 375 Frontage) between Interstate Highway 10 and Montana Avenue (U.S. 62/180).

7. Zaragoza Road (FM 659) between Border Highway (Loop 375) and south city limits (International Boundary at Ysleta Port-of-Entry: Zaragoza Bridge);

8. Zaragoza Road (FM 659) between east city limits and its north intersection with Joe Battle Boulevard (Loop 375 Frontage).

9. Montana Avenue (U.S. 62/180) between Airway Boulevard and east city limits;

10. Airway Boulevard between Montana Avenue (U.S. 62/180) and Interstate Highway 10;

11. Trowbridge Drive between Interstate Highway 10 and Delta Drive;

12. Delta Drive between Trowbridge Drive and Fonseca Drive;

13. Fonseca Drive between Delta Drive and Border Highway (Loop 375);

14. Fred Wilson Road between Airport Road and Patriot Freeway (U.S. 54);

15. Marshall Road between Fred Wilson Road and Railroad Drive;

16. Railroad Drive between Fred Wilson Road and Dyer Street;

17. Dyer Street between Railroad Drive and its north intersection with Patriot Freeway (U.S. 54);

18. Artcraft/Ord Gary Highway (SH 178) from West City Limits (New Mexico State Line) to Interstate Highway 10.

19. SPUR 601 between Patriot Freeway (U.S. 54) and Loop 375 (Purple Heart Highway). (Ord. 14779 § 1, 2001; Ord. 11701 § 3, 1993)
(Ord. No. 17237, § 1, 11-10-2009)

12.88.130 Schedule XI—Parking meter zones.

A. It shall be a defense to any complaint under this section that the party so charged was serving or, called to serve, at the time of the offense charged, as a juror in any local, state or federal court located within the city.

B. It shall also be a defense to any complaint under this section that the party so charged was a witness in a criminal proceeding in any local, state or federal court located within the city; it is understood that the criminal proceeding includes not only the main trial of any criminal cause but also includes any pretrial hearing wherein the presence of witnesses is mandated or requested by either the prosecution or the defense counsel. In the case of these defenses, any person desiring to utilize the defenses may prove either one of these defenses in one of two ways:

1. By presenting, in open court, a statement signed by the presiding judge, the clerk of such court, or the district attorney or any authorized assistant district attorney, expressly stating that

such party was sitting as a juror or a witness in a criminal proceeding on the date and at the time of the parking violation in question; or

2. By pursuing the same procedure as outlined above, but instead of presenting the statement in open court, present the violation along with the statement from the above-designated authorities to a clerk in the traffic violation bond office, who will make the appropriate notation and attach the statement to the ticket and thereafter, dismissal procedures will be informally pursued upon recommendation by the city prosecutor. (Ord. 15249 §§ 1, 2, 3, 2002; Ord. 13062 § 15, 1997; Ord. 10769 §§ 1—3, 1991; Ord. 10681 §§ 1, 2, 1991; Ord. 10398 §§ 1, 2, 1991; Ord. 10046 § 3, 1990; Ord. 9497 § 2, 1988; Ord. 9434 § 1, 1988; Ord. 8270 §§ 1, 3, 4, 1985; prior code § 20-187)

12.88.140 Schedule XII—Location of traffic-control signs, signals and devices.

In accordance with Section 12.20.040, traffic-control signals and devices shall be located at the following places:

Acer—McRae
Acer—Viscount
Airport—Airway/Robert E. Lee
Airport—Boeing
Airport—Butterfield Trail/Forrest
Airport—Founders
Airport—Leigh Fisher
Airport—Mescalero/Montana
Airport—Sioux
Airport—Tank Crossing
Airport/Fred Wilson—Biggs Field
Airway—Boeing
Airway—Convair
Airway—Edgemere
Airway—Gateway East/West
Airway—Montana
Airway—Viscount
Alabama—Fort Boulevard
Alabama—Fred Wilson
Alabama—Harrison
Alabama—McKelligon Canyon
Alabama—McKinley
Alabama—Nashville
Alabama—Richmond/K-Mart
Alabama—Wheeling
Alabama—Zion
Alameda—Ascarate
Alameda—Buena Vista
Alameda—Cadwallader
Alameda—Candelaria/Old Pueblo
Alameda—Carnes
Alameda—Carolina
Alameda—Clark
Alameda—Collingsworth/Cooley School
Alameda—Concepcion/El Paso Drive
Alameda—Copia
Alameda—Croom
Alameda—Davis
Alameda—Delta
Alameda—Durrill
Alameda—Fullan
Alameda—George Orr
Alameda—Harris
Alameda—Lafayette
Alameda—Lee Trevino
Alameda—Liberty
Alameda—Little Flower
Alameda—Loop 375
Alameda—Magoffin
Alameda—McCarthy
Alameda—Midway
Alameda—Old County/Ysleta Lane
Alameda—Paisano
Alameda—Pasodale
Alameda—Piedras
Alameda—Prado
Alameda—Presa
Alameda—Rafael Septian
Alameda—Raynolds/Val Verde
Alameda—Riverside
Alameda—Rosedale
Alameda—Texas
Alameda—Yarbrough
Alameda—Zaragoza
Album—McRae
Album—Wedgewood

Album—Yarbrough
Alcan—Loop 375
Alto Mesa—Mesa
Alto Rey—Resler
Altura—Copia
Altura—Gateway North/South
Altura—Pershing
Altura—Piedras
Argonaut—Mesa
Arizona—Campbell
Arizona—Cotton
Arizona—Kansas
Arizona—Mesa
Arizona—Oregon
Arizona—Stanton
Artcraft—Doniphan
Ascarate Park Entrance—Delta
Aurora—Copia
Aurora—Piedras
Balboa—Mesa
Baltimore—Mesa
Barlett/Remcon West—Mesa
Belvidere—Mesa
Belvidere—Resler
Belvidere—Westwind
Betel—Zaragosa
Big 8 Entrance—Yarbrough
Bob Mitchell—George Dieter
Bomarc—Loop 375
Bordeaux—North Loop
Borderland—Doniphan
Borrett—North Loop
Brentwood—Mesa
Broaddus—Dyer
Broaddus—Gateway North/South
Brown—Montana
Brown—Schuster/Murchison
Buena Vista—Delta
Burnham—Lomaland
Cadiz/Crestmont—Sunland Park
Camille—Mesa
Campbell—Franklin
Campbell—Main
Campbell—Mills
Campbell—Missouri
Campbell—Montana
Campbell—Myrtle
Campbell—Overland

Campbell—Paisano
Campbell—Rio Grande
Campbell—San Antonio
Campbell—Texas
Campbell—Yandell
Caprock—Shadow Mountain
Carolina—Franklin
Carolina—Giles
Carolina—North Loop
Carolina—Yarbrough
Castellano—Mesa
Castner—Lee Trevino
Chaffee—Fred Wilson
Chelsea—El Paso Drive/Paisano
Chelsea—Gateway East/West
Chelsea—Montana
Chelsea—Trowbridge
Chelsea—Yandell
Chermont—Sunland Park
Chevron Entrance North—Trowbridge
Chevron Entrance South—Trowbridge
Cielo Vista Mall Entrance North—Hawkins
Ceilo Vista Mall Entrance South—Hawkins
Clark—Trowbridge
Cloudview—Resler
Coles—Paisano
Commerce—Hawkins
Copia—Douglas
Copia—Durazno
Copia—Fort
Copia—Gateway East/West
Copia—Hueco
Copia—Montana
Copia—Pershing
Copia—Yandell
Cordova Interchange
Corral/Sumac—Gateway East/West
Cotton—Delta
Cotton—Grant/Rio Grande
Cotton—Magoffin
Cotton—Missouri
Cotton—Montana
Cotton—Myrtle
Cotton—Texas
Cotton—Wyoming
Cotton—Yandell
Country Club—Memory Lane
County Club—Montoya
County Club—Westside Road
Country Club/Mesa—Doniphan
Coventry/Warwick—North Loop
Crestmont/Crown Point—Mesa
Cromo—Sunland Park
Crossroads—Mesa
Dale Douglas—Trawood
Dale Douglas—Vista Del Sol
Dale—North Loop
Deer—Dyer
Delta—Feliz
Delta—Fonseca
Delta—Trowbridge/North Loop
Delta—Val Verde
Desert Boulevard North/South—Loop 375
Desert Boulevard North/South—Mesa
Diana—Dyer
Diana—Gateway North/South
Diana—Hercules
Diana—Hondo Pass
Diana—Kenworthy
Diana—Railroad
Doniphan—Lindberg
Doniphan—Montoya
Doniphan—Mulberry
Doniphan—Redd
Doniphan—Sunland Park
Doniphan—Sunset
Doniphan—Thorn
Durazno—Raynolds
Dyer—Ellerthorpe
Dyer—Fairbanks
Dyer—Fillmore
Dyer—Fred Wilson
Dyer—Gateway North/South
Dyer—Hayes
Dyer—Hercules
Dyer—Hondo Pass
Dyer—Loop 375
Dyer—Manila
Dyer—Maxwell
Dyer—McCombs

Dyer—McKinley
Dyer—Monroe
Dyer—Pershing
Dyer—Rushing/Will Ruth
Ryer—Rutherford
Dyer—Sanders
Dyer—Sun Valley
Dyer—Tetons
Dyer—Tompkins
Dyer—Van Buren
Dyer—Wren
Dyer—Yvette
East—North Loop
Edgemere—Geronimo
Edgemere—Hawkins
Edgemere—Lee Trevino
Edgemere—McRae
Edgemere—Sioux
Edgemere—Yarbrough
El Cajon—Resler
El Paso Community College—North Loop
El Paso—Mills/San Francisco
El Paso—Missouri
El Paso—Overland
El Paso—Paisano
El Paso—San Antonio
El Paso—Wyoming
El Paso—Yandell
Ellerthorpe—Gateway North/South
Emerson—North Loop
Escobar—Zaragoza
Escondido—Resler
Escondido—Westwind
Esther Lama—George Dieter/Zaragoza
Eucalyptus—Paisano
Executive Center—Mesa
Executive Center—Off Ramps
Executive Center—Paisano
Executive Center—Rio Bravo
Fairbanks—Rushing
Father Rahm—Stanton
Festival—Mesa
Firehouse—Montwood
Forest—Gateway North/South
Fort—Piedras
Franklin—Kansas
Franklin—Mesa
Franklin—Oregon
Franklin—Santa Fe
Franklin—Stanton
Fred Wilson—Gateway North/South
Fred Wilson—Jeb Stuart
Fred Wilson—Marshall
Gateway East/West—George Dieter/Zaragoza
Gateway East/West—Geronimo
Gateway East/West—Giles/McRae
Gateway East/West—Hawkins
Gateway East/West—Hunter/Viscount
Gateway East/West—Lee Trevino
Gateway East/West—Lomaland
Gateway East/West—Paisano
Gateway East/West—Piedras
Gateway East/West—Raynolds
Gateway East/West—Raynor
Gateway East/West—Trowbridge
Gateway East/West—Yarbrough
Gateway North/South—Hercules
Gateway North/South—Honda Pass
Gateway North/South—Kenworthy
Gateway North/South—Loop 375
Gateway North/South—McCombs
Gateway North/South—Montana
Gateway North/South—Paisano
Gateway North/South—Pershing
Gateway North/South—Sean Haggerty
Gateway North/South—Sun Valley
Gateway North/South—Trowbridge
Gateway North/South—Yandell
George Dieter—Montana
George Dieter—Montwood
George Dieter—Pebble Hills
George Dieter—Pellicano
George Dieter—Rojas
George Dieter—Trawood
George Dieter—Vista Del Sol
George Dieter—Zaragosa
Geronimo—Montana
Geronimo—Trowbridge
Giles—Parral
Giles—Phoenix

Gilmore—North Loop
Golden Key—Viscount
Grant—Piedras
Harris—Zaragosa
Hawkins—Industrial
Hawkins—Market
Hawkins—Montana
Hawkins—North Loop
Hawkins—Phoenix
Hawkins—Tony Lama
Hawkins—Viscount
Henry Brennen—Zaragoza
Hercules—Magnetic
Hercules—Railroad
Hondo Pass—Railroad
Hondo Pass—Stahala
Howze—Trowbridge
Huckleberry—Montana
Hunter—North Loop
Hunter—Phoenix
Hunter—Taxco/EPCC
Independence—Yarbrough
Jobe—Paisano
Jon Cunningham—Martin Luther King
Kansas—Loop 375
Kansas—Main
Kansas—Mills
Kansas—Missouri
Kansas—Montana
Kansas—Myrtle
Kansas—Overland
Kansas—Paisano
Kansas—Rio Grande
Kansas—San Antonio
Kansas—Texas
Kansas—Wyoming
Kansas—Yandell
Kenworthy—Loop 375
Kerby—Mesa
Kerby—Stanton
LaFayette—Yarbrough
Lake Omega—Montwood
Lee Trevino—Montana
Lee Trevino—Montwood
Lee Trevino—North Loop
Lee Trevino—Pebble Hills
Lee Trevino—Pellicano
Lee Trevino—Rojas
Lee Trevino—Sam Snead
Lee Trevino—Trawood
Lee Trevino—Vista Del Sol
Lee Trevino—Yermoland
Lee—Montwood
Lomaland—Montwood
Lomaland—North Loop
Lomaland—Pellicano
Lomaland—Rojas
Lomaland—Trawood
Lomaland—Vista Del Sol
Lomaland—Yermoland
Loop 375—McCombs
Loop 375—Montana
Loop 375—Montwood
Loop 375—North Loop
Loop 375—Pan American
Loop 375—Railroad
Loop 375—Rojas
Loop 375—Rushing
Loop 375—Socorro
Loop 375—Zaragoza North
Loop 375—Zaragoza South
Loop 375—Zaragoza Truck Bridge
Magoffin—Piedras
Magruder—Montana
Main—Mesa
Main—Oregon
Main—Santa Fe
Main—Stanton
Manila—McCombs
Mattox—Montana
McCombs—Railroad
McCombs—Sanders
McCombs—Sun Valley
McCombs—Will Ruth
McCombs—Wren
McKelligon—Stanton
McRae—Montana
McRae—Montwood
McRae—Sims
McRae—Wedgewood

Medical Center—Murchison
Mellon—Zaragoza
Mesa Hills—Sunland Park
Mesa—Mesa Hills
Mesa—Mesita/Sun Bowl
Mesa—Mills
Mesa—Missouri
Mesa—Montana
Mesa—Osborne
Mesa—Overland
Mesa—Paisano
Mesa—Pitts
Mesa—Remcon East
Mesa—Resler
Mesa—Rim
Mesa—Rio Grande
Mesa—River
Mesa—San Antonio
Mesa—Schuster
Mesa—Shadow Mountains/Sunland Park
Mesa—Texas
Mesa—Thunderbird
Mesa—University
Mesa—Wyoming
Mesa—Yandell
Mills—Oregon
Mills—Stanton
Missouri—Oregon
Missouri—Piedras
Missouri—Santa Fe
Missouri—Stanton
Montana—Oregon
Montana—Paisano
Montana—Piedras
Montana—Raynolds
Montana—Raynor
Montana—Robert E. Lee
Montana—Rutherglen
Montana—Sioux
Montana—Stanton
Montana—Trowbridge
Montana—Virginia
Montana—Wedgewood
Montana—Yarbrough
Montwood—Saul Kleinfeld
Montwood—Skaggs Supermarket/Popeye
Montwood/Trawood
Montwood—Viscount
Montwood—Wedgewood
Montwood—Yarbrough
Montwood—Zaragoza
New World—Zaragoza
North Loop—Franklin/West
North Loop—Pendale
North Loop—Yarbrough
North Loop—Zaragosa
Ochoa—Paisano
Oregon—Overland
Oregon—Paisano
Oregon—San Antonio
Oregon—Schuster
Oregon—Texas
Oregon—University
Oregon—Wyoming
Oregon—Yandell
Orizaba—Resler
Overland—Santa Fe
Overland—Stanton
Paisano—Piedras
Paisano—Saint Vrain
Paisano—San Antonio
Paisano—San Marcial
Paisano—Santa Fe
Paisano—Shelter/Washington
Paisano—Stanton
Paisano—Trowbridge
Paisano—Val Verde
Paisano—Yandell
Pebble Beach—Shadow Mountain
Pebble Hills—Yarbrough
Pellicano—Zaragosa
Pershing—Piedras
Pershing—Raynor
Pershing—Trowbridge
Piedras—Tularosa
Piedras—Wyoming
Piedras—Yandell
Raynolds—Yandell
Raynor—Wyoming
Raynor—Yandell

Redd—Resler
Redd—Westwind
Rio Grande—Stanton
Rojas—Zaragosa
Roseway—Zaragosa
San Antonio—Santa Fe
San Antonio—Stanton
San Francisco—Santa Fe
San Jose—Yarbrough
Santa Fe—Wyoming
Sante Fe—Yandell
Schuster—Off Ramps
Schuster—Stanton
Schuster—Sun Bowl
Seventh—Stanton
Shadow Mountain—Thunderbird
Smiths Entrance—Zaragosa
Socorro—Zaragosa
Springwood—Wedgewood
Springwood—Yarbrough
Stanton—Texas
Stanton—University
Stanton—Wyoming
Stanton—Yandell
Sunland Park—Off Ramps
Sunland Park—Sunland Park Mall Entrance
Teodoso—Zaragosa
Tonka—Viscount
Trawood—Yarbrough
Viscount—Westmoreland
Vista De Oro—Vista Del Sol
Vista Del Sol—Yarbrough
Vista Del Sol—Zaragosa
Walmart Driveway—Yarbrough
Walmart Driveway—Zaragoza
Woodard—Yarbrough (Ord. 13824 § 1, 1998: Ord. 11996 § 1, 1994; Ord. 11858 § 1, 1994; Ord. 11685 § 1, 1993; Ord. 11684 § 1, 1993; Ord. 11589 § 1, 1993; Ord. 11551 § 1, 1993; Ord. 11464 § 1, 1993; Ord. 11114 § 1, 1992; Ord. 11070 § 1, 1992; Ord. 10988 § 1, 1992; Ord. 10931 § 1, 1992; Ord. 10891 § 1, 1992; Ord. 10735 § 1, 1991; Ord. 10691 § 1, 1991; Ord. 10648 § 1, 1991; Ord. 10604 § 1, 1991; Ord. 10545 § 1, 1991; Ord. 10539 § 1, 1991; Ord. 10506 § 1, 1991; Ord. 10488 § 1, 1991; Ord. 10485 § 1, 1991; Ord. 10396 § 1, 1991; Ord. 10258 § 1, 1990; Ord. 10235 § 1, 1990; Ord. 10047 § 1, 1990; Ord. 10040 § 1, 1990; Ord. 10008 § 1, 1990; Ord. 9910 § 1, 1989; Ord. 9732 § 1, 1989; Ord. 9642 § 1, 1989; Ord. 9557 § 1, 1988; Ord. 9501 §§ 1, 2, 1988; Ord. 9500 § 1, 1988; Ord. 9428 § 1, 1988; Ord. 9396 § 1, 1988; Ord. 9288 § 1, 1988; Ord. 9248 § 1, 1987; Ord. 9141 § 1, 1987; Ord. 9059 § 1, 1987; Ord. 8875 § 1, 1986; Ord. 8788 § 1, 1986; Ord. 8737 § 1, 1986; Ord. 8547, 1985; Ord. 8529, 1985; Ord. 8432 § 6, 1985; Ord. 8379 §§ 1, 2, 1985; Ord. 8310 § 1, 1985; Ord. 8243 § 1, 1984; Ord. 8189 § 1, 1984; Ord. 8161, 1984; prior code § 20-188)

12.88.150 Schedule XIV—Speed limits.

In accordance with Section 12.28.010, the city council determines and declares, upon the basis of engineering and traffic investigations as set forth for such purposes by state law, that the maximum reasonable, prudent and safe speed upon the following highways and streets, or portions thereof, is the number of miles per hour hereinafter set forth:

A. Ten miles per hour:

1. On Edgar Park Avenue from Echo Street to the Streets;

B. Fifteen miles per hour:

1. On all streets and roads in city parks,

2. In all school crossing zones when so designated and signed as provided in Sections 12.28.010 and 12.28.020; provided, on all streets which have a route number assigned by the state, the speed limit in a school crossing zone shall be twenty miles an hour less than the regular posted speed for that part of the street, but in no case less than fifteen miles an hour,

3. Convair Road in front of the El Paso International Airport, from a point approximately 300 feet north of its intersection with Terminal Drive North to its intersection with Terminal Drive South,

4. On Marcena Drive from Bluff Trail Drive to De Leon Drive;

C. Twenty miles per hour:

1. On Edgar Park Avenue from Echo Street to the west city limits,

2. Normandy Drive from Airport Road to Cherbourg Avenue,

3. Candelaria Street,

4. Concepcion Street from Alameda Avenue to Rosa Street,

5. Concepcion Street from Blanco Avenue to Delta Drive,

6. Hughes Circle,

7. Webbers Way,

8. Prieto Way,

9. Caufield Place,

10. Hernandez Street,

11. Fox Street,

12. Sue Hall Avenue,

13. Blanco Avenue between Hernandez Street and Francis Street,

14. Troy Avenue,

15. On Wenda Way between the south right-of-way line of North Loop Drive and the north right-of-way line of San Jose Avenue,

16. Snelson Drive between Alameda Avenue and the Franklin Canal,

17. Lone Star Place between Socorro Drive South right-of-way line and Padilla Drive north right-of-way line,

18. Scenic Drive between Robinson Avenue and the entrance to Murchison Park,

19. Dunne Avenue from Fullan Street to Washington Street,

20. Cincinnati Avenue from Piedmont Drive to Ochoa,

21. Ellerthorpe Road between Dyer Street and the west end of Fort Bliss Boundary line,

22. Audubon Street between Fairbanks Drive and Woodrow Bean Trans Mountain Drive,

23. Estrella Street, between San Antonio Avenue and Rivera Avenue,

24. New Haven Drive,

25. Pebble Beach Drive from Burning Tree Drive East to Bonneville Lane,

26. Eucalyptus Street from Cypress Street to Olive Avenue,

27. Raynor Street from Findley Avenue to the southerly intersection of Rivera Avenue and Raynor Street,

28. Canal Street from Seventh Avenue to where Canal Street ends northwest of Bandera Avenue,

29. Jordan Lane from Love Road to Silverwood Way,

30. Old Pueblo Road from Alameda Avenue to Zaragoza Road,

31. Eighth Avenue between Campbell Street and Park Street,

32. Alfredo Subia Place, Bandera Way, Charles Road and Zikio Chacon Place;

D. Twenty-five miles per hour:

1. Scenic Drive between the entrance to Murchison Park and Louisville Avenue,

2. Belvidere Street from Via Montes Street to where Belvidere Streets ends northeast of Via De La Paz Drive,

3. Bandolero Drive from Cerrito Feliz Lane to where Bandolero Drive ends northeast of Via De La Paz Drive,

4. Rosemont Drive, from Love Road to the end of Rosemont Drive,

5. Rojas Drive, between Pendale Road and Trudy Elaine Drive;

E. Thirty miles per hour:

1. Fonseca Drive from a point 250 feet north of Mainzer Avenue to Loop 375 (Border Highway),

2. Railroad Drive from Dyer Street to a point 0.38 miles south of Dyer Street,

3. Schuster Avenue from Sun Bowl Drive to Brown Street,

4. Westwind Drive from Stardust Drive to Thunderbird Drive,

5. Desert Pass St. from S. Resler Dr. to a point 300 feet past Desert Trail Dr;

F. Thirty-five miles per hour:

1. Alabama Street from Federal Avenue to Jefferson Avenue,

3. Airport Road from Montana Avenue to Airway Boulevard,

4. Trowbridge Drive from Raynolds Street to Interstate Highway 10, and from Texaco Road to North Loop Road,

5. Yandell Drive from Campbell Street to Gateway Boulevard West,

6. Myrtle Avenue from Alameda Avenue to Cotton Street,

7. Deleted,

8. Deleted,

9. Lee Trevino Drive from Rojas Drive to Burnham Drive,

10. Rio Grande Avenue from Campbell Street to Cotton Street,

11. Grant Avenue from Cotton Street to Piedras Street,

12. Arizona Avenue from Alabama Street to Cotton Street,

13. McCombs Street from Railroad Drive to Dyer Street,

14. Hercules Drive from Magnetic Street to Railroad Drive,

15. River Bend Drive,

16. Wedgewood Drive from Springwood Drive to Bantry Avenue,

17. Arizona Avenue between Brown Street and Campbell Street,

18. Wyoming Avenue between Maple Street and Cotton Street,

19. Deleted,

20. Hawkins Boulevard from Montana Avenue to Market Avenue,

21. Airway Boulevard from Gateway Boulevard West to Montana Avenue,

22. Reserved,

23. Sunland Park Drive from Mesa Street to a point 400 feet west of Mesa Street,

24. Diana Drive from Railroad Drive to Dyer Street,

25. Shadow Mountain Drive between Mesa Street and Thunderbird Drive,

26. Lomaland Drive from Gateway East Boulevard to North Loop Road,

27. Viscount Boulevard between Airway Boulevard and Gateway Boulevard West,

28. Fairbanks Drive between Dyer Street and Gateway Boulevard North,

29. North Loop Drive from a point 350 feet west of Carolina Drive to Emerson Street,

30. Deleted,

31. Lomaland Drive from Vista del Sol Drive to Trawood Street,

32. Montwood Drive from Viscount Boulevard to easternmost city limits,

33. Trawood Drive from Yarbrough Drive to George Dieter Drive,

34. Deleted,

35. Deleted,

36. Westwind Drive from Stardust Drive to Redd Road,

37. McRae Boulevard from Interstate Highway 10 to a point 300 feet north of Acer Drive,

38. McRae Boulevard from Montana Avenue to a point 0.25 miles south thereof, northbound lanes only,

39. Delta Drive from Trowbridge Drive (North Loop) to a point 300 feet west of Ascarate Street,

40. Delta Drive from Val Verde Street to Customs Drive,

41. Deleted,

42. Hawkins Boulevard from North Loop Drive to a point 1,000 feet north thereof,

43. Midway from State 20 (Alameda Avenue) to Loop 375 (Border Highway),

44. Deleted,

45. Alabama Street from Atlas Avenue to a point 500 feet south of Zion Drive,

46. Zaragoza Road between North Loop Drive and a point 100 feet north of the Southern Pacific Railroad right-of-way,

47. Pebble Hills Boulevard from Yarbrough Drive to end of city limits (east),

48. Carolina Drive between Alameda Avenue and Yarbrough Drive,

49. Sunland Park Drive from Doniphan Drive to a point 400 feet east of Doniphan Drive,

50. Edgemere Boulevard from McRae Boulevard to George Dieter Drive,

51. Acer Avenue from Viscount Boulevard to McRae Boulevard,

52. Mesa Hills from Kingsfield Avenue to Sunland Park Drive,

53. Giles Road from Gateway Boulevard East to Phoenix Avenue,

54. Deleted,

55. Lee Trevino from North Loop Drive to Juan De Herrera Lateral,

56. Betel Drive from Zaragoza Avenue to Bordeaux Street,

57. Kenworthy Street from Fairbanks Drive to a point 50 feet south of Ambassador Drive,

58. Kenworthy Street from 100 feet north of Salem-Bon Aire Drive to Gateway North Boulevard,

59. Rushing Road from Danny Drive to Sun Valley Drive,

60. Belvidere Street from White Cliffs Drive to Westwind Drive,

61. Resler Drive from El Camino Drive to Enid Court,

62. Railroad Drive from Falcon Avenue to a point 200 feet north of Deer Avenue,

63. George Dieter Drive from Montana Avenue to a point 800 feet south of Montana Avenue,

64. Deleted,

65. Vista Del Sol Drive from Yarbrough Drive to east city limits,

66. Hondo Pass Drive between Gateway Boulevard North and Railroad Drive,

67. Deleted,

68. Deleted,

69. Deleted,

70. Saul Kleinfeld Drive from Zaragoza Road to Montwood Drive,

71. Pellicano Drive from Vista De Oro Drive to Lee Trevino Drive,

72. High Ridge Drive between Resler Drive to the east city limits,

73. Deleted,

74. Turner Avenue,

75. Lee Trevino Drive between Montana Avenue (U.S. 62 and U.S. 180) and Edgemere Boulevard,

76. Don Haskins Drive from Zaragoza Road to Gateway Boulevard East,

77. Nolan Richardson Drive,

78. Deleted,

79. Tierra Este Road from Zaragoza Road (FM 659) north to city limits,

80. Pullman Drive,

81. Ted Houghton Drive from Pellicano Drive to Olga Mapula Drive,

82. Jon Cunningham Boulevard,

83. Marcus Uribe Drive,

84. Ojo de Agua Drive from Via Descanso Lane to Westwind Drive,

85. Executive Center Boulevard from Mesa Street Paisano Drive,

86. Loma Verde Drive between Pine Springs Drive and Rojas Drive,

87. Sun Fire Boulevard,

88. R.C. Poe Road,

89. Resler Drive between Black Ridge Drive and Luz de Camino Way,

90. New World Drive,

91. Sean Haggerty Drive between Elise Street and the north city limits,

92. Mesquite Hill Drive,

93. Tierra Dorada Drive,

94. Lee Boulevard,

95. Charles Foster Avenue,

96. Ralph Seitsinger Drive,

97. Tim Foster Street,

98. Northern Pass Drive, between Desert North Boulevard and Helen of Troy Drive,

99. Paseo Del Norte Drive, between Resler Drive and Northern Pass Drive,

100. Ventana Avenue,

101. Country Club Road from Doniphan Drive to the west city limits,

102. Mike Price Drive, from Edgemere Boulevard to Montwood Drive,

103. G R Campuzano Drive from Rich Beem Boulevard to the east City limits,

104. Enchanted Springs Drive,

105. Northwestern Drive, from Enchanted Springs Drive to the north City limits,

106. San Felipe Drive, from Northwestern Drive to Resler Drive,

107. Socorro Drive (FM 258) between a point 400 feet southeast of Southside Road and the southeast city limits,

108. Upper Valley Road between Country Club Road and Borderland Road,

109. Westside Drive between Country Club Road and Borderland Road,

110. Justice Street from Montana Avenue to due north city limits;

G. Forty miles per hour:

1. Deleted,

2. Deleted,

3. Fonseca Drive from Delta Drive to a point 250 feet north of Mainzer Avenue,

4. Doniphan Drive between a point 0.25 miles south of Sunset Road to Mesa Street,

5. McRae Boulevard from a point 0.25 miles south of Montana Avenue to a point 300 feet north of Acer Drive,

6. Yarbrough Drive, from Border Highway (Loop 375) to San Paulo Avenue,

7. Deleted,

8. North Loop Drive from Trowbridge Drive to a point 350 feet west of Carolina Drive and from Emerson Street to Nottingham,

9. Trowbridge Drive from Interstate Highway 10 to Texaco Road,

10. Sunland Park Drive from a point 400 feet west of Mesa Street to a point 400 feet east of Doniphan Drive,

11. Deleted,

12. Deleted,

13. Yarbrough Drive from Gateway West Boule-vard to Montana Avenue,

14. Lomaland Drive from Interstate 10 to Vista del Sol Drive,

15. Deleted,

16. McRae Boulevard from Montana Avenue to a point 0.25 miles south thereof, southbound lanes only,

17. Delta Drive from Customs Drive to a point 1,000 feet east of Coles Street,

18. Hawkins Boulevard from a point 1,000 feet south of Merchant Avenue to a point 1,000 feet north of North Loop Drive,

19. Boeing Drive from Airway Boulevard to Hawkins Boulevard,

20. Escondido Drive from a point 500 feet east of Palmary Drive to a point 500 feet west of Westwind Drive,

21. Lee Trevino Drive from George Archer Drive to Weston Brent Lane,

22. Rojas Drive from Lomaland Drive to Pendale Road and from Trudy Elaine Drive to east city limits,

23. Fred Wilson Road from Alabama Street to Marshall Road,

24. Airway Boulevard from Montana Avenue to Airport Road,

25. Resler Drive from Enid Court to Black Ridge Drive and from Luz de Camino Way to Helen of Troy Drive,

26. Railroad Drive from a point 0.38 miles south of Dyer Street to a point 0.76 miles south of Dyer Street,

27. George Dieter Drive from Zaragoza Road to Edgemere Boulevard,

28. Forty miles per hour on Festival Drive between Mesa Street and Stanton Street,

29. Silver Springs, east of Shadow Mountain to Cortina Avenue,

30. Deleted,

31. Redd Road from Westwind Drive to north city limits,

32. Saul Kleinfeld Drive from Montwood Drive to Montana Avenue (between U.S. 62 & U.S. 180),

33. Pellicano Drive from Lee Trevino Drive to east city limits,

34. Northwestern Drive from Transmountain Road (Loop 375) to 500 feet south of Westport Drive,

35. Zaragoza Road from Mile Post 8.131 to IH-10 (freeway),

36. Borderland Road, from Doniphan Drive to Westside Road,

37. El Paso Drive from Glenwood Street eastbound to 300 feet east of Valencia Place,

38. Bob Hope Drive from Eschenbrenner Avenue to Joe Battle Boulevard,

39. Henry Brennan Drive from Zaragoza Road (FM 659) to Gateway Boulevard West,

40. Edgemere Boulevard from George Dieter to east city limits,

41. Rich Beem Boulevard,

42. Founders Boulevard,

43. Zaragoza Road, from Socorro Road to Americas Avenue North,

44. Helen of Troy Drive between Desert North Boulevard and the east City limits,

45. Angora Loop South, from Dyer Street to Railroad Drive,

46. Paseo Del Norte Drive, between Desert North Boulevard and Resler Drive;

H. Forty-five miles per hour:

1. Hondo Pass Drive between Magnetic Street and Gateway Boulevard North,

2. Deleted,

3. Doniphan Drive between Frontera Road and Paisano Drive, except that part that lies in the state of New Mexico,

4. Deleted,

5. Deleted,

6. Railroad Drive from Hondo Pass Drive Road to Falcon Avenue,

7. Alabama Street from Jefferson Avenue to a point 500 feet south of Zion Drive,

8. Airport Road from Airway Boulevard to Fred Wilson Road,

9. Deleted,

10. Lee Trevino Drive from Weston Brent Lane to Rojas Drive,

11. Fred Wilson Road from Marshall Road to Airport Road,

12. a. Zaragoza Road from North Loop Road to IH-10,

b. Deleted,

13. Diana Drive between Dyer Street and Gateway Boulevard North,

14. McCombs Street from Dyer Street to Dalhart Drive,

15. North Loop Road from Nottingham to east city limits,

16. George Dieter Boulevard from Zaragosa Road to Gateway Boulevard West,

17. Resler Drive from El Camino Drive to the city access line 1,100 feet south of El Camino Drive,

18. George Dieter Drive from Edgemere Boulevard to a point 800 feet south of Montana Avenue,

19. Deleted,

20. Redd Road from Doniphan Drive to Resler Drive,

21. Deleted,

22. Deleted,

23. Deleted,

24. Deleted,

25. McCombs Street from Stan Roberts Sr. Road to north city limits,

26. Kenworthy Street from Diana Drive to Trans-Mountain Drive,

27. Zaragoza Road from Montana Avenue to a point 300 feet south of Rojas Drive,

28. Deleted,

29. Zaragoza Road from Mile Post 7.757 to Mile Post 8.131,

30. Deleted,

31. Lee Trevino Drive between George Archer Drive and Edgemere Boulevard,

32. Deleted,

33. Resler Drive, from Helen of Troy Drive to Transmountain Road (Loop 375),

34. Walter Jones Boulevard,

35. George Perry Boulevard,

36. John Hayes Street,

37. Tierra Este Road from Zaragoza Road, south to the city limits,

38. Paseo Del Este Drive, from Joe Battle Boulevard, east to its terminus,

39. Tim Floyd Street, from Edgemere Boulevard to the south City limits;

I. Fifty miles per hour:

1. Doniphan Drive between a point 0.25 miles south of Sunset Road to Frontera Road,

2. Lee Trevino from Burnham to Juan De Herrera Lateral,

3. Railroad Drive from a point 200 feet north of Deer Avenue to a point 0.76 miles south of Dyer Street,

4. Deleted,

5. Deleted,

6. Deleted,

7. Global Reach Drive;

J. Fifty-five miles per hour:

1. Deleted,

2. Deleted,

3. Americas Avenue (Loop 375) from Zaragosa Drive to Pan American Drive,

4. Americas Avenue (Loop 375) from a point 500 feet northeast of North Loop Drive to IH-10 (Freeway),

5. McCombs Street from Dalhart Drive to its terminus at FM 3255,

6. Deleted,

7. Deleted,

8. Railroad Drive from Fred Wilson Road to Hondo Pass Drive,

9. Stan Roberts Sr Avenue;

K. Speed limits on Interstate Highway 10 (the freeway and frontage roads):

1. Definitions:

a. "Freeway" means divided arterial highways for through traffic with full control of access and grade separations at all intersections,

b. "Frontage roads" means roadways which distribute and collect traffic between local streets and the freeway interchanges,

2. On the freeway:

a. Maximum speed of 70 m.p.h. from Mile Post 4.043 (northwest city limits) to milepost 8.85 (Edgar Road),

b. Maximum speed of 60 m.p.h. and a minimum speed of 45 m.p.h. from milepost 8.85 (Edgar Road) to the east city limits except that section of IH-10 from STA No. 273 + 00 to STA No. 667 + 00, both directions, shall be reduced from 60 m.p.h. to 45 m.p.h.,

c. Temporary reduction of the 60 m.p.h. speed limit, to 55 m.p.h. on IH-10 mile point 35.54 to mile point 35.868, both directions,

d. Temporary reduction of the existing 60 m.p.h. speed limit to 50 m.p.h. on Interstate Highway 10 from Executive Center to US 62/180 (Paisano Drive) in both directions,

e. Temporary reduction of the existing 60 m.p.h. speed limit to 50 m.p.h. on Interstate Highway 10 from Thorn Drive to Edgar Road,

f. Temporary reduction of the existing 70 m.p.h. speed limit to 60 m.p.h. on Interstate Highway 10 from Edgar Road to the westside city limits of El Paso,

3. On the frontage roads:

a. 55 m.p.h. on Gateway Boulevard East and Gateway Boulevard West from the west city limits to Thorn Avenue,

b. 50 m.p.h. on Gateway Boulevard East and Gateway Boulevard West from Thorn Avenue to Mesa Street (north),

c. 35 m.p.h. westbound of Sun Bowl Drive from West Yandell Drive to Schuster Avenue,

d. 35 m.p.h. westbound on West Main Drive from Los Angeles Drive to West Yandell Drive,

e. 40 m.p.h. eastbound on frontage road between Porfirio Diaz Street and West Main Drive,

f. 30 m.p.h. westbound on East Yandell Drive from Kansas Street (downtown off-ramp) to Santa Fe Street,

g. 30 m.p.h. eastbound on Wyoming Avenue from Santa Fe Street to Kansas Street,

h. 45 m.p.h. westbound on Missouri Avenue from Magnolia Street to Virginia Street,

i. 45 m.p.h. on Gateway Boulevard West from Stevens Street to Magnolia Street,

j. 45 m.p.h. on Gateway Boulevard East from Eucalyptus Street to Lee Trevino Drive,

k. 45 m.p.h. on Gateway Boulevard West from Lee Trevino Drive to Raynolds Street,

l. 50 m.p.h. on Gateway Boulevard East and Gateway Boulevard West from Lee Trevino Drive to a point 2.296 miles east thereof,

m. 55 m.p.h. on Gateway Boulevard East and Gateway Boulevard West from a point 2.296 miles east of Lee Trevino Drive to the east city limits,

n. Deleted,

o. Deleted,

p. 45 m.p.h. on North Desert Boulevard and South Desert Boulevard from STA No. 273+100 to STA No. 667+00, both directions,

q. 30 m.p.h. on Gateway North Boulevard from Delta Drive to Paisano Drive,

r. 40 m.p.h. on Gateway North Boulevard from Paisano Drive to Alameda Avenue;

L. Speed limits on Loop 375, the freeway and frontage roads:

1. Definitions. For the purposes of designating the speed limits on Loop 375, the following definitions shall apply to this section:

a. "Freeway" means divided arterial highways for through traffic with full control of access and grade separations at all intersections,

b. "Frontage roads" means roadways that distribute and collect traffic between local streets and the freeway interchanges,

2. Speed limit on the freeway:

a. Maximum speed of 60 m.p.h. and a minimum of 45 m.p.h. from 5,070 feet east of Park Street to Interstate Highway 10,

b. Maximum speed of 65 m.p.h. and a minimum of 45 m.p.h. for the portion of Loop 375 from Interstate Highway 10 to the east city limit (Railroad Drive),

c. Maximum speed of 60 m.p.h. and a minimum of 45 m.p.h. from east city limit (Railroad Drive) to Alcan Street,

d. 55 m.p.h. on Loop 375, also known as Woodrow Bean Trans-Mountain Drive, from a point 1,324.55 feet east of West El Paso city limits to a point 6.624 miles east thereof,

e. 45 m.p.h. on Loop 375, also known as Talbot Avenue, from a point 391 feet east of the West El Paso city limits to a point 1,324.55 feet east thereof,

f. 35 m.p.h. on Loop 375, also known as Talbot Avenue, from West El Paso city limits to a point 391 feet east thereof,

3. Speed limits on the frontage roads:

a. 40 m.p.h. from Santa Fe Street to a point 250 feet east of Mesa Street,

b. 45 m.p.h. from a point 250 feet east of Mesa Street to a point 5,070 feet east of Park Street,

c. 55 m.p.h. on Americas Avenue from Zaragoza Drive to Pan American Drive,

d. 45 m.p.h. on Americas Avenue North from Pan American Drive to a point 500 feet north of North Loop Drive,

e. 45 m.p.h. on Americas Avenue South from Pan American Drive to a point 500 feet north of Alameda Avenue,

f. 50 m.p.h. on Americas Avenue South from a point 500 feet north of Alameda Avenue to a point 500 feet north of North Loop Drive,

g. 55 m.p.h. on Americas Avenue from a point 500 feet north of North Loop Drive to IH-10 (Freeway),

h. 55 m.p.h. on Joe Battle Boulevard from IH-10 (freeway) to north city limits,

i. 40 m.p.h. on Woodrow Bean/Trans-Mountain Drive, from east city limit (Railroad Drive) to Rushing Road,

j. 45 m.p.h. on Woodrow Bean/Trans-Mountain Drive (Loop 375) from Rushing Road to U.S. 54 (Patriot Freeway);

M. Speed limits on the following parts of Montana Avenue:

1. 35 m.p.h. between Copia Street and Trowbridge Drive,

2. 40 m.p.h. between Trowbridge Drive and a point 0.1 miles east of Airway Boulevard,

3. 45 m.p.h. between a point 0.1 miles east of Airway Boulevard and Wedgewood Drive,

4. 55 m.p.h. between Wedgewood Drive and the east city limits;

N. Speed limits on the following parts of Pershing Drive and Dyer Street:

1. 40 m.p.h. on Pershing Drive between Altura Avenue and Dyer Street,

2. 40 m.p.h. on Dyer Street from Pershing Drive to Quail Avenue,

3. 45 m.p.h. on Dyer Street from Kemp Avenue to Gateway South,

4. 40 m.p.h. on Dyer Street from Gateway South Boulevard to a point 500 feet north of Rushing Boulevard to Quail Avenue,

5. 45 m.p.h. on Dyer Street from a point 500 feet north of Rushing Boulevard to Quail Avenue,

6. 50 m.p.h. on Dyer Street from Quail Avenue to Grouse Road,

7. 55 m.p.h. on Dyer Street from Grouse Road to north city limits;

O. Speed limits on parts of Doniphan Drive (S.H. 20) and Mesa Street (S.H. 20 and U.S.B.R. 80):

1. 50 m.p.h. on Doniphan Drive from the north city limits to a point 0.687 miles south thereof,

2. 40 m.p.h. on Doniphan Drive from Redd Road to Mesa Street,

3. 45 m.p.h. on Mesa Street from Doniphan Drive to Alto Mesa Drive,

4. 40 m.p.h. on Mesa Street from Alto Mesa Drive to Crestmont Drive/Crown Point Drive,

5. Reserved,

6. 45 m.p.h. on Mesa Street from Crestmont Drive/Crown Point Drive to Gregory Avenue,

7. 35 m.p.h. on Mesa Street from Gregory Street to Montana Avenue,

8. 30 m.p.h. on Mesa Street from Montana Avenue to Texas Avenue,

9. 45 m.p.h. on Doniphan Drive from a point 0.687 mile south of the north city limits to Redd Road;

P. Speed limits on parts of Texas Avenue (SH 20) and Alameda Avenue (SH 20):

1. 30 m.p.h. on Alameda Avenue from Texas Avenue to a point 205.92 feet west of Clark Street,

2. 40 m.p.h. on Alameda Avenue from a point 205.92 feet west of Clark Street to a point 0.03 miles east of Tangier Place,

3. 40 m.p.h. on Alameda Avenue from a point 0.02 mile west of Glenwood Street to a point 0.03 mile east of Tangier Place,

4. 30 m.p.h. on Alameda Avenue from a point 0.03 mile east of Tangier Place to a point 0.05 mile south of Delta Drive,

5. 40 m.p.h. on Alameda Avenue from a point 0.05 mile south of Delta Drive to a point 0.13 mile south of Valdespino Street,

6. 35 m.p.h. on Alameda Avenue from a point 0.13 mile south of Valdespino Street to a point 0.04 mile north of Snelson Drive,

7. 30 m.p.h. on Alameda Avenue from a point 0.04 mile north of Snelson Drive to a point 0.03 mile south of Cananea Lane,

8. 45 m.p.h. on Alameda Avenue from a point 0.03 mile south of Cananea Lane to a point 0.057 mile north of Inglewood Drive,

9. 55 m.p.h. on Alameda Avenue from a point 0.057 mile north of Inglewood Drive to south city limits;

Q. Speed limits on U.S. 62 (Paisano Drive):

1. 55 m.p.h. on U.S. 62 (Paisano Drive) from Interstate Highway 10 to a point 0.51 mile south of Yandell Drive,

2. 40 m.p.h. on Paisano Drive from a point 0.51 mile south of Yandell Drive to Leon Street,

3. 30 m.p.h. on Paisano Drive from Leon Street to Stanton Street,

4. 35 m.p.h. on Paisano Drive from Stanton Street to Hills Street,

5. 45 m.p.h. on Paisano Drive from Hills Street to Fox Place,

6. 35 m.p.h. on Paisano Drive from Fox Place to Interstate Highway 10,

7. 40 m.p.h. on Paisano Drive from Interstate Highway 10 to Montana Avenue;

R. Speed limits on the North-South Freeway (the freeway, collector-distributor roads and frontage roads):

1. Definitions:

a. "Freeway" means divided arterial highways for through traffic with full control of access and grade separations at all intersections,

b. "Collector-distributor roads" means an auxiliary roadway parallel to and separated from the freeway which serves to collect and distribute traffic from several access points,

c. "Frontage roads" means roadways which distribute and collect traffic between local streets and the freeway interchanges,

2. On the freeway: maximum speed of 60 m.p.h. and a minimum speed of 45 m.p.h. from the Border Highway (Loop 375) north to Fairbanks Drive,

3. On the collector-distributor roads: maximum speed of 55 m.p.h. northbound and southbound on collector-distributor roads from Yandell Drive to Pershing Drive,

4. On the frontage roads:

a. 40 m.p.h. on Gateway Boulevard North from Yandell Drive to Pershing Drive,

b. 40 m.p.h. on Gateway Boulevard South from Pershing Drive to Yandell Drive,

c. 50 m.p.h. on Gateway Boulevard South from the Van Buren Overpass to Pershing Drive,

d. 50 m.p.h. on Gateway Boulevard North from the Van Buren Overpass to Fred Wilson Road,

e. 50 m.p.h. on Gateway Boulevard South from Hayes Street to the Van Buren Overpass,

f. 45 m.p.h. on Gateway Boulevard South from Fred Wilson Road to Hayes Street,

g. 45 m.p.h. on Gateway Boulevard North from Fred Wilson Road to Fairbanks Drive,

h. 45 m.p.h. on Gateway Boulevard South from Fairbanks Drive to Fred Wilson Road,

i. 65 m.p.h. on Gateway North Boulevard from a point 0.728 miles east of McCombs Street to the city limits,

j. Reserved,

k. 65 m.p.h. Gateway South Boulevard from the city limits to a point 0.728 miles east of McCombs Street,

l. 55 m.p.h. on Gateway Boulevard North from Pershing Drive to the Van Buren Overpass;

S. Expired;

T. Speed limits on Martin Luther King Jr. Boulevard (FM 3255):

1. 45 m.p.h. on Martin Luther King Jr. Boulevard (FM 3255), from Loma Real Avenue to Gateway South Boulevard,

2. 55 m.p.h. on Martin Luther King Jr. Boulevard (FM 3255), from a point 3.05 miles south of state line to Loma Real Avenue,

3. 65 m.p.h. on Martin Luther King Jr. Boulevard (FM 3255), from state line to a point 3.05 miles south; (Ord. 16847 §§ 1, 2, 2008; Ord. 16740 §§ 1, 2, 2007; Ord. 16721 § 1, 2007; Ord. 16691 § 1, 2007; Ord. 16690 § 1, 2007; Ord. 16646 § 1, 2007; Ord. 16547 § 1, 2007; Ord. 16427 § 1, 2006; Ord. 16426 § 1, 2006; Ord. 16425 § 1, 2006; Ord. 16349 § 1, 2006; Ord. 16348 § 1, 2006; Ord. 16347 § 1, 2006; Ord. 16346 § 1, 2006; Ord. 16345 § 1, 2006; Ord. 16344 § 1, 2006; Ord. 16343 § 1, 2006; Ord. 16342 § 1, 2006; Ord. 16276 § 1, 2006; Ord. 16275 §§ 1, 2, 2006; Ord. 16208 § 1, 2005; Ord. 16207 § 1, 2005; Ord. 16195 § 1, 2005; Ord. 16166 §§ 1, 2, 2005; Ord. 16148 §§ 1—7, 2005; Ord. 16147 § 1, 2005; Ord. 16105 § 1, 2005; Ord. 16046 § 1, 2005; Ord. 16029 § 1, 2005; Ord. 15978 § 1, 2005; Ord. 15947 § 1, 2004; Ord. 15904 § 1, 2004; Ord. 15903 § 1, 2004; Ord. 15869 § 1, 2004; Ord. 15862 § 1, 2004; Ord. 15835 § 1, 2004; Ord. 15829 § 1, 2004; Ord. 15796 § 1, 2004; Ord. 15762 § 1, 2004; Ord. 15623 § 1, 2003; Ord. 15588 § 1, 2003; Ord. 15561 § 1, 2003; Ord. 15497 § 1, 2003; Ord. 15495 § 1, 2003; Ord. 15494 § 1, 2003; Ord. 15493 § 1, 2003; Ord. 15451 § 1, 2003; Ord. 15443 § 1, 2003; Ord. 15442 § 1, 2003; Ord. 15399 § 1, 2003; Ord. 15398 § 1, 2003; Ord. 15397 § 1, 2003; Ord. 15323 § 1, 2003; Ord. 15270 § 1, 2002; Ord. 15173 § 1, 2002; Ord. 15172 § 1, 2002; Ord. 15171 § 1, 2002; Ord. 15125 § 1, 2002; Ord. 15028 § 1, 2002; Ord. 14983 § 1, 2001; Ord. 14982 § 1, 2001; Ord. 14954 § 1, 2001; Ord. 14673 § 1, 2000; Ord. 14581 § 1, 2000; Ord. 14435 § 1, 2000; Ord. 14296 § 1, 1999; Ord. 14230 § 1, 1999; Ord. 14077 § 1, 1999; Ord. 14063 § 1, 1999; Ord. 14038 § 1, 1999; Ord. 14037 § 1, 1999; Ord. 14008 § 1, 1999; Ord. 13915 § 1, 1998; Ord. 13888 § 1, 1998; Ord. 13838 § 1, 1998; Ord. 13810 § 1, 1998; Ord. 13558 § 1, 1998; Ord. 13557 § 1, 1998; Ord. 13556 § 1, 1998; Ord. 13555 § 1, 1998; Ord. 13554 § 1, 1998; Ord. 13553 § 1, 1998; Ord. 13552 § 1, 1998; Ord. 13551 § 1, 1998; Ord. 13550 § 1, 1998; Ord. 13302 § 1, 1997; Ord. 13301 § 1, 1997; Ord. 13277 § 1, 1997; Ord. 13276 § 1, 1997; Ord. 12987 § 1, 1996; Ord. 12986 § 1, 1996; Ord. 12961 § 1, 1996; Ord. 12960 § 1, 1996; Ord. 12951 § 1, 1996; Ord. 12952 § 1, 1996; Ord. 12739

§§ 1—9, 1996; Ord. 12687, 1996; Ord. 12585 §§ 1, 2, 1995; Ord. 12267, 1995; Ord. 12054, 1994; Ord. 12053, 1994; Ord. 12015, 1994; Ord. 12014, 1994; Ord. 12013, 1994; Ord. 11741 § 1, 1994; Ord. 11740 § 1, 1994; Ord. 11739 § 1, 1994; Ord. 11661 § 1, 1993; Ord. 11660 § 1, 1993; Ord. 11659 § 1, 1993; Ord. 11658 § 1, 1993; Ord. 11657 § 1, 1993; Ord. 11656 § 1, 1993; Ord. 11601 § 1, 1993; Ord. 11300 § 1, 1993; Ord. 11299 § 1, 1993; Ord. 11298 § 1, 1993; Ord. 11235 § 1, 1992; Ord. 11214 § 1, 1992; Ord. 11123 § 1, 1992; Ord. 10834 §§ 1, 2, 1992; Ord. 10833 §§ 1, 2, 1992; Ord. 10535 § 1, 1991; Ord. 10534 §§ 1, 2, 1991; Ord. 10257 § 1, 1990; Ord. 10043 § 1, 1990; Ord. 9837 §§ 1, 2, 1989; Ord. 9814 §§ 1, 2, 1989; Ord. 9720 § 1, 1989; Ord. 9705 §§ 1—5, 1989; Ord. 9704 §§ 1—5, 1989; Ord. 9694 §§ 1, 2, 1989; Ord. 9547 § 1, 1988; Ord. 9502 § 1, 1988; Ord. 9436 §§ 1, 2, 1988; Ord. 9413 §§ 1, 2, 1988; Ord. 9243 § 1, 1987; Ord. 9154 § 1, 1987; Ord. 9140 § 1, 1987; Ord. 9002 §§ 1, 2, 1987; Ord. 8818 §§ 1, 2, 1986; Ord. 8769 § 1, 1986; Ord. 8768 § 1, 1986; Ord. 8693 § 1, 1986; Ord. 8676 §§ 1, 2, 1986; Ord. 8675 § 1, 1986; Ord. 8670 §§ 1, 2, 1986; Ord. 8664 § 1, 1986; Ord. 8663 § 1, 1986; Ord. 8651 § 1, 1986; Ord. 8649 § 1, 1986; Ord. 8634 §§ 1, 2, 3, 1986; Ord. 8591, 1986; Ord. 8574, 1986; Ord. 8573 § 1, 1986; Ord. 8572 §§ 1, 2, 3, 1986; Ord. 8481, 1985; Ord. 8432 § 7, 1985; Ord. 8378 §§ 1, 2, 1985; prior code § 20-190)

(Ord. No. 17052, § 1, 1-13-2009; Ord. No. 17126, § 1, 6-16-2009; Ord. No. 17148, §§ 1, 2, 7-21-2009; Ord. 17212, § 1, 10-13-2009; Ord. 17213, § 1, 10-13-2009; Ord. 17215, § 1, 10-13-2009; Ord. No. 17342, §§ 1, 2, 6-15-2010; Ord. No. 17365, § 1, 7-27-2010; Ord. No. 17411, § 1, 9-21-2010; Ord. No. 17492, §§ 1, 2, 1-25-2011; Ord. No. 17955, § 1, 2-19-2013; Ord. No. 17956, § 3, 2-19-2013; Ord. No. 18009, § 1, 5-7-2013; Ord. No. 18058, § 1, 8-6-2013; Ord. No. 18254, § 1, 10-7-2014; Ord. No. 18522, §§ 1, 2, 5-31-2016; Ord. No. 18694, §§ 1, 2, 6-13-2017; Ord. No. 18696, § 1, 6-13-2017; Ord. No. 18958, §§ 1—3, 8-6-2019; Ord. No. 19188, § 1, 5-11-2021; Ord. No. 19189, §§ 1—3, 5-11-2021; Ord. No. 19198, § 1, 6-8-2021; Ord. No. 19362, §§ 1—4, 8-2-2022; Ord. No. 019507, § 1, 5-23-2023; Ord. No. 019508, §§ 1, 2, 5-23-2022; Ord. No. 019548, §§ 1—4, 10-10-2023; Ord. No. 019710, §§ 1, 2, 3-4-2025; Ord. No. 019765, §§ 1, 2, 7-22-2025)

12.88.160 Schedule XV—City taxicab zone.

A. The traffic engineer is authorized and directed to establish a city taxicab zone at the following location:

1. The Paso Del Norte Bridge Taxicab Zone-located on the north side of Sixth Avenue from the northeast corner of El Paso Street east to the northwest corner of the alley west of Oregon and east of Mesa Street.

2. Anthony Street, two spaces between a point one hundred thirty feet and one hundred seventy feet north of the San Antonio Avenue, west side. Hours in effect between 6:00 p.m.—2:30 a.m.

3. Durango Drive, first two parking spaces south of San Antonio Avenue west side. Hours in effect between 6:00 p.m.—2:30 a.m.

B. When such zones are established the traffic engineer shall erect appropriate signs and/or markings to designate the city taxicab zone limits and operation of each zone.

C. Taxicabs may stop or stand in such zones for the purpose of discharging or taking on passengers as stated on the signs to be erected. The driver shall remain in, or in the vicinity of his taxicab while it is in the zone.

D. A taxicab shall not stop or remain in the area of a designated zone if there are other taxicabs already operating under a duly authorized special permit under Title 6 of this Code and there is not sufficient room left for a taxicab operating under another special permit and desiring to use the zone.

E. The taxicab inspector, or in his absence any police officer, may direct taxicab drivers in the use of such zones, so as to avoid congestion and give all taxicabs reasonably equal opportunity for use of the zones; and every taxicab driver shall obey the direction of such inspector or officer.

F. When any such zone is designated by signs or markings as herein provided, no person shall

stop, stand or park any vehicle therein, except that a taxi driver may stop in such zone in accordance with the regulations herein set forth, and not otherwise.

G. In addition to the penalty provided in Sections 1.08.010 through 1.08.030 of this Code, violation of this section by a taxi driver shall be grounds for revocation or suspension of the issued taxicab zone permit, in accordance with the procedure provided in Title 6 of the City Code. (Ord. 16410 § 1, 2006; prior code § 20-191)
(Ord. No. 17919, § 1, 12-18-2012; Ord. No. 18549, § 1, 8-9-2016)

12.88.170 Schedule XVI—Parking limited on certain streets on all days.

In accordance with Section 12.52.060 and when signs are erected giving notice thereof, no person shall stop, stand or park a vehicle between the hours specified herein on any day, including Sundays and legal holidays, within the districts or upon the street or parts of streets as follows:

A. No parking, 11:00 p.m. to 5:30 a.m.:

1. Grant Avenue between Raynor Street and Copia Street, on either side,

2. Copper Avenue between Luna Street and Copia Street, on either side,

3. Federal Avenue between Luna Street and Copper Avenue, on either side;

B. No parking, 6:00 p.m. to 6:00 a.m.:

1. Belfast Avenue south side between the east right-of-way line of Cork Drive to west, the end of cul-de-sac,

2. Belfast Avenue north side, between the east property line of 10011 Belfast Avenue to west, the end of cul-de-sac,

3. Killarney Road, west side, between the north right-of-way to Falkirk Avenue to a point 300 feet north of the north right-of-way line of Belfast Avenue,

4. Killarney Road, east side, between the south property line of 3326 Killarney Road to the south right-of-way line of Montana Avenue (U.S. Highway 62). (Prior code § 20-192)
(Ord. No. 17338, § 6, 6-1-2010)

12.88.180 No stopping or standing—Tow-away zone.

A. When signs are erected in the following locations reading substantially, "No parking or standing, tow-away zone," no person shall park or stand any vehicle on the following parts of streets at any time, including, but not limited to Sundays and holidays:

1. Both sides of Montana Avenue from Piedras Street to Cedar Street;

2. North side of Montana Avenue from Cedar Street to Birch Street;

3. Both sides of Montana Avenue from Eucalyptus Street to Laurel Street;

4. North side of Montana Avenue between Laurel Street and Williams Street;

5. Yandell Drive, north side between Florence Street and a point 415 feet west of El Paso Street;

6. Yandell Drive, south side, between Campbell Street and Santa Fe Street;

7. East side of Virginia Street between the north curbline of Wyoming Avenue and a point 50 feet north thereof;

8. Yandell Drive, southwest side, between the north curbline of the Interstate Highway 10 entrance ramp at the intersection of Santa Fe Street and Yandell Drive and a point 272 feet northwest thereof; and Yandell Drive, northeast side, between the intersection of Yandell Drive with Santa Fe Street and a point 285 feet northwest thereof;

9. Both side of Cotton Street from Third Avenue to Olive Avenue;

10. East side of Cotton Street from Olive Avenue to Magoffin Avenue;

11. Both sides of the Cotton Street Service Road from Overland Street Service Road to San Antonio Avenue;

12. South side of Overland Street from the west right-of-way line of Tornillo Street to Cotton Street;

13. Both sides of the Overland Street Service Road from its intersection with Overland Street just east of Tornillo Street to the Cotton Street Service Road;

14. Both sides of Second Avenue from Tornillo Street to Coles Street;

15. Deleted;

16. Deleted;

17. The east side of Campbell Street between Myrtle Avenue and Texas Avenue;

18. Deleted;

19. Campbell Street between San Antonio Avenue and Myrtle Avenue, both sides;

20. Campbell Street between Main Drive and Yandell Drive, both sides;

21. Kansas Street between Yandell Drive and Main Drive, both sides;

22. Kansas Street between Yandell Drive and a point 120 feet north thereof, west side;

23. Deleted;

24. Kansas Street between Mills Avenue and the alley south thereof, east side;

25. Kansas Street between Myrtle Avenue and San Antonio Avenue, both sides;

26. Stanton Street between Wyoming Avenue and a point 180 feet north thereof, both sides;

27. Stanton Street between Franklin Avenue and a point 130 feet south thereof, west side;

28. Stanton Street between Main Drive and a point 165 feet north thereof, east side;

29. Stanton Street between Main Drive and a point 170 feet south thereof, east side;

30. Stanton Street from a point 25 feet north of First Avenue to a point 25 feet south of First Avenue, west side;

31. Stanton Street between Overland Avenue and San Antonio Avenue, west side;

32. Mesa Street between Montana Avenue and Main Drive, both sides;

33. Mesa Street between Main Drive and a point 145 feet south thereof, east side;

34. Deleted;

35. Deleted;

36. Deleted;

37. Oregon Street between San Antonio Avenue and Texas Avenue, east side;

38. El Paso Street between Wyoming Avenue and Yandell Drive, both sides;

39. El Paso Street between San Antonio Avenue and a point 80 feet south of the most southerly curbline of Overland Avenue, east side;

40. El Paso Street between San Francisco Avenue and Main Drive, both sides except for the commercial loading zone located on the west side of El Paso Street;

41. Along the curbs of the raised median installed at the intersection of South Stanton Street, East San Antonio Avenue and Myrtle Avenue as follows: South side of median from South Stanton Street to a point 120 feet east thereof; west side of the median from East San Antonio Avenue to a point 165 feet north thereof; east and north sides of median from a point 125 feet north of Myrtle Avenue to Myrtle Avenue and continuously along the curb of said median to South Kansas Street;

42. Mills Avenue between Campbell Street and a point 120 feet west of Kansas Street, south side;

43. Main Drive between Kansas Street and Mesa Street, north side;

44. Deleted;

45. Santa Fe Street between San Antonio Avenue and Yandell Drive, both sides;

46. Durango Street from Missouri Avenue to Franklin Avenue, west side;

47. Durango Street between West San Antonio Avenue and Franklin Avenue, both sides;

48. Durango Street Service Road West, from the south line of Western Avenue to San Antonio Avenue, both sides; 12.88.180

49. Durango Street Service Road West, from San Francisco Avenue to the south line of Western Avenue, east side;

50. Durango Street Service Road East, between San Antonio Avenue and San Francisco Avenue, west side;

51. The north side of San Antonio Avenue from the centerline of Durango Street to a point 350 feet east thereof;

52. Paisano Drive from Santa Fe Street to Durango Street, north side;

53. Deleted;

54. Franklin Avenue from Campbell Street to a point 120 feet west thereof, south side;

55. Franklin Avenue from Campbell Street to a point 80 feet west thereof, north side;

56. Deleted;

57. Franklin Avenue from Off-Ramp to Los Angeles Drive, south side;

58. Deleted.

59. Franklin Avenue from Durango Street to a point 60 feet west from Durango Street, south side;

60. Franklin Avenue beginning at 200 feet west from Coldwell Street to Los Angeles Drive, north side;

61. Wyoming Avenue between Santa Fe Street and Kansas Street, both sides;

62. Wyoming Avenue between Campbell Street and a point 110 feet west of Ochoa Street, both sides;

63. Yandell Drive between Yandell Drive at its intersection at Santa Fe Street and a point 275 feet north and west thereof, west side;

64. Missouri Avenue between Ange Street and Kansas Street, both sides;

65. Missouri Avenue from Kansas Street to a point 55 feet west thereof, north side;

66. Montana Avenue from Florence Street to Mesa Street, both sides;

67. Montana Avenue from Florence Street to the alley between Florence Street and Ochoa Street, south side;

68. Deleted;

69. Texas Avenue between Mesa Street and Florence Street, south side;

70. The north side of First Avenue between Kansas Street and a point 80 feet east thereof, north side;

71. Both sides of University Avenue from Oregon Street to the entrance to the University of Texas at El Paso;

72. North side of Main Drive between Campbell Street and Kansas Street;

73. Both sides of Camino Real from the El Paso city limits, which coincides with the Texas-New Mexico state line, to a point 100 feet east thereof;

74. Missouri Avenue from 180 feet east of Rosewood Street to Brown Street, north side; Missouri Avenue between Piedras Street and Brown Street, south side; and Missouri Avenue between Brown Street and Ange Street, south side;

75. West side of Santa Fe Street from a point 150 feet south of Third Avenue to a point 250 feet north of Paisano Drive;

76. East side of Santa Fe Street from Third Avenue to a point 75 feet north of Paisano Drive;

77. Westwind Drive from Belvidere Street to Snowheights Court, both sides;

78. Fullan Street from Albro Street to Alameda Avenue, eastside only;

79. Both sides of Champions Place from Mesa Street to Cloudview Drive;

80. Cloudview Drive, both sides, from Champions Place to 500 feet east thereof;

81. North side of Mills Avenue between Oregon Street and El Paso Street;

82. The south side of Rio Grande Avenue, from Virginia Street to a point 120 feet west thereof;

83. Both sides of Santa Fe Street, between San Antonio Avenue and Loop 375;

84. West side of Oregon Street between San Antonio Avenue and Paisano Drive;

85. East side of Stanton Street between Overland Avenue and Paisano Drive;

86. Deleted;

87. Deleted;

88. Deleted;

89. Ochoa Street, west side only, between Overland Avenue and San Antonio Avenue;

90. Overland Avenue, north side only, between Florence Street and Ochoa Street;

91. Deleted;

92. Both sides of Montana from Walnut Street to Eucalyptus Street;

93. Bob Hope Drive from Joe Battle Boulevard (Loop 375) to Pellicano Drive;

94. Resler Drive, westside only, from the north side of Redd Road to a point 1,500 feet north;

95. Resler Drive, both sides, from a point 1,500 feet north of Redd Road, northerly to the south side of Nardo Goodman Drive;

96. Resler Drive, both sides, from the west side of Luz De Camino Way to the city limits;

97. Redd Road, both sides, from Doniphan Drive (eastside) to Resler Drive (westside);

98. Redd Road, southside, from Resler Drive (eastside) easterly to Marble Canyon Drive, south side only;

99. Redd Road, both sides, from Marble Canyon (northside) to the city limits;

100. Dodge Road, from Stiles Drive southwesterly to its terminus, both sides;

101. Tierra Este Drive, from Montana Avenue (US 62/180) to Zaragoza Road (FM 659), both sides;

102. Main Drive from Oregon Street to a point 100 feet west, north side;

103. Main Drive from a point 100 feet west of Oregon Street to El Paso Street, both sides;

104. Bartlett Drive, from Mesa Street to Le Conte Drive, both sides;

105. Fullan Street, from Alameda Avenue (SH 20) south to its terminus, both sides;

106. Pendale Road.

a. West side between Gateway East Boulevard to Yermoland Drive and from Castner Drive to Kastrin Street; and

b. East side between Gateway East Boulevard to Castner Drive and from a point nine hundred feet south of Castner Drive to Kastrin Street;

107. Sixth Avenue, between El Paso Street and Oregon Street, south side only;

108. Campbell Street between Arizona Avenue and Nevada Avenue, west side;

109. Chihuahua Street, east side from Calleros Court to its terminus, west side from a point 60 feet south of Calleros Court to its terminus;

110. Pine Springs Drive from Loma Verde Drive west to a point 120 feet east of its terminus;

111. Fourth Avenue between El Paso Street and Santa Fe Street, north side only;

112. Both sides of the alley between Stanton Street and Kansas Street, from University Avenue to Kerbey Avenue;

113. JC Cramer Lane, from Barker Road to Coronado Road, south side only.

114. Kansas Street, from Yandell Drive to Montana Avenue, east side only.

115. North side of Coloma Circle, from Liberty Street to a point 360 feet east thereof.

116. Glenwood Street, from El Paso Drive to Alameda Avenue, both sides;

117. Rio Del Norte Drive, from S. Americas Avenue (commonly known as the "Ysleta-Zaragoza International Truck Bridge") to 400 feet east of Playa Norte Drive, north side only.

118. Rio Del Norte Drive, from S. Americas Avenue (commonly known as the "Ysleta-Zaragoza International Truck Bridge") to 340 feet east, south side only.

119. N. El Paso Street from Franklin Avenue to W. Main Drive, west side.

120. Pollard Street, from Hayes Avenue to Truman Avenue, east side.

121. Truman Avenue, from Pollard Street to a point 420 feet east, north side.

B. When signs are erected in the following locations reading substantially "No parking or standing, 7—9 a.m. and 4—6 p.m., tow-away zone," no person shall park or stand any vehicle on the following parts of streets between 7:00 and 9:00 a.m. or between 4:00 and 6:00 p.m. on any day, including, but not limited to, Sundays and holidays:

1. North side of Montana Avenue from Birch Street to Maple Street;

2. Both sides of Montana from Walnut Street to Eucalyptus Street.

C. When signs are erected in the following locations reading substantially "No Parking or Standing, Tow-away Zone—Sundays Only," no person shall park or stand any vehicle on the following parts of streets at any time on Sundays.

D. When signs are erected in the following locations reading substantially "No Parking or Standing, Tow-away Zone—Saturdays and Sun-

days Only," no person shall park or stand any vehicle on the following parts of streets at any time on Saturdays and Sundays:

1. Little Flower Road, both sides, from Ben Swain Drive to the north side of La Playa drain.

E. When signs are erected in the following locations reading substantially "No Parking or Standing, 2:00—6:00 a.m., Tow-Away Zone," no person shall park or stand any vehicle on the following parts of streets between 2:00 a.m. and 6:00 a.m. on any day, including, but not limited to, Sundays and holidays:

1. El Paso Street, both sides, from Sixth Avenue to Wyoming Avenue.

2. Stanton Street, both sides, Eighth Avenue to Franklin Avenue.

F. Any person violating any provision of this section shall be deemed guilty of a misdemeanor and punished by a fine not less than five dollars nor more than five hundred dollars.

G. The police department is directed to cause to be towed away any vehicle found parked or standing in violation of this section; and the owner of such vehicle shall be civilly liable to the person doing such towing for the reasonable cost thereof.

H. When signs are erected in the following location reading substantially "No Parking or Standing, 7:00 p.m.—7:00 a.m., Tow-away Zone, anytime, including but not limited to, Sundays and holidays:"

Campestre Lane, west side only.

I. When signs are erected in the following location reading substantially "No Parking or Standing, 8:00 p.m.—4:00 a.m., Tow-away Zone, anytime, including but not limited to, Sundays and holidays":

Common Drive, from Dale Douglas Drive to the property line between 1614 and 1618 Common Drive.

J. When signs are erected in the following location reading substantially, "No Parking or Standing, Trailers or Vehicles With or Without Trailers, Exceeding Nine Feet in Height, Twenty-six feet in length or seven feet, eight inches in Width, Tow-Away Zone" no person shall park or stand any trailers or vehicles with or without trailers, exceeding nine feet in height, twenty-six feet in length or seven feet, eight inches in width on the following parts of streets at any time, including, but not limited to, Sundays and legal holidays:

Within the area bounded by of Cotton St., to the west; Paisano St., to the south; Texas Ave. to the north; and Piedras St. to the east.

K. Reserved.

(Ord. 16902 §§ 1, 2, 2008; Ord. 16900 §§ 1, 2, 2008; Ord. 16891 § 1, 2008; Ord. 16851 § 1, 2008; Ord. 16743 § 2, 2007; Ord. 16692 §§ 2, 3, 2007; Ord. 16643 §§ 2, 3, 2007; Ord. 16558 § 1, 2007; Ord. 16506 § 1, 2006; Ord. 16482 § 1, 2006; Ord. 16478 § 1, 2006; Ord. 16335 § 1, 2006; Ord. 16298 § 1, 2006; Ord. 16205 § 1, 2005; Ord. 16146 § 1, 2005; Ord. 16066 § 1, 2005; Ord. 15948 § 1, 2004; Ord. 15849 § 1, 2004; Ord. 15848 § 1, 2004; Ord. 15834 § 1, 2004; Ord. 15818 §§ 1, 2, 2004; Ord. 15798 § 1, 2004; Ord. 15722 § 1, 2004; Ord. 15498 § 1, 2003; Ord. 12612 § 1, 1995; Ord. 12611 § 1, 1995; Ord. 12485 § 1, 1995; Ord. 12408 §§ 1, 2, 1995; Ord. 11301 § 1, 1993; Ord. 11088 § 1, 1992; Ord. 10620 §§ 1, 2, 1991; Ord. 9277 § 1, 1988; Ord. 8943 § 1, 1987; Ord. 8751 § 1, 1986; Ord. 8750 § 1, 1986; Ord. 8712 § 1, 1986; Ord. 8425 §§ 1—3, 1985; Ord. 8388, 1985; Ord. 8300 §§ 1—3, 1985; prior code § 20-193)

(Ord. No. 17066, § 1, 2-3-2009; Ord. No. 17068, § 2, 2-3-2009; Ord. No. 17115, § 1, 5-26-2009; Ord. No. 17338, § 7, 6-1-2010; Ord. No. 17531, § 1, 4-12-2011; Ord. No. 17733, § 1, 2-21-2012; Ord. No. 17771, § 1, 4-17-2012; Ord. No. 17865, § 1, 9-11-2012; Ord. No. 18057, §§ 1, 2, 8-6-2013; Ord. No. 18101, § 1, 12-17-2013; Ord. No. 18573, § 4, 9-20-2016; Ord. No. 18592, § 1, 11-1-2016; Ord. No. 18594, § 1, 11-1-2016; Ord. No. 18600, § 1, 11-15-2016; Ord. No. 18695, § 1, 6-13-2017; Ord. No. 18822, § 1, 7-24-2018; Ord. No. 18875, §§ 1—6, 11-13-2018; Ord. No. 18993, § 1, 10-15-2019; Ord. No. 19049, § 1, 3-31-2020; Ord. No. 19187, § 1, 5-11-2021; Ord. No. 019689, § 1, 11-19-2024; Ord. No. 019711, § 1, 3-4-2025)

12.88.190 No stopping or standing at any time.

A. When signs are erected in the following locations reading substantially "No Stopping or

Standing," no person shall park, stop, or stand any vehicle on the following parts of streets at any time, including, but not limited to Sundays and legal holidays:

1. West side of Raynor Street from Copper Avenue to Grant Avenue;

2. North side of Copper Avenue from Raynor Street to a point four hundred feet east of Luna Street;

3. West side of Luna Street from Copper Avenue to Federal Avenue and from Wheeling Avenue to the alley, approximately one hundred forty feet north, thereof.

B. When signs are erected in the following locations reading substantially "No Stopping or Standing" no person shall park, stop, or stand any vehicle on the following parts of streets at any time, except Sundays and legal holidays:

1. Loma Verde Drive between a point five hundred thirty-nine feet north of Rojas Drive and two hundred forty-five feet south of David Bret Drive, both sides.

C. Any person violating any provision of subsection A or B of this section shall be deemed guilty of a misdemeanor and punished by a fine not exceeding five hundred dollars. (Ord. 9430 § 7, 1988; prior code § 20-194)

(Ord. No. 17338, § 8, 6-1-2010; Ord. No. 17930, § 1, 1-15-2013; Ord. No. 18501, § 1, 5-17-2016; Ord. No. 18667, § 1, 4-18-2017)

12.88.200 Schedule XVII—Restrictions on parking in residential districts.

In accordance with Section 12.44.280 and when signs are erected giving notice thereof, no person, except a person who holds a valid parking permit, shall stop, stand or park a vehicle between the hours specified in this section, within the districts or upon the street or parts of streets as follows:

Zone A: No parking, 7:00 a.m. to 6:00 p.m., Monday through Friday:

1. Beginning at the intersection of the centerlines of Randolph Drive and Shuster Avenue;

Thence south along the centerline of Randolph Drive to its intersection with the centerline of West Yandell Drive;

Thence northwest along the centerline of West Yandell Drive to its intersection with the centerline of Sun Bowl Drive;

Thence north along the centerline of Sun Bowl Drive to its intersection with the centerline of Heisig Avenue;

Thence east along the centerline of Heisig Avenue to its intersection with the center of Prospect Street;

Thence north along the centerline of Prospect Street to its intersection with the centerline of Schuster Avenue;

Thence east along the centerline of Schuster Avenue to the point of beginning.

With the following exception of street parking:

Adjacent to property owned by the University of Texas at El Paso; and

Southside of Heisig Avenue.

2. Beginning at the intersection of the centerline of West Yandell Drive with the southeast curbline of Fewel Street;

Thence southwest along the northeast curbline of Fewel Street to its intersection with the northeast curbline of Mundy Drive;

Thence northwest along the northeast curbline of Mundy Drive to its intersection with the west curbline of Lawton Drive;

Thence south along the west curbline of Lawton Drive to its intersection with the south curbline of Missouri Avenue;

Thence west along the south curbline of Missouri Avenue to its intersection with the east curbline of Porfirio Diaz Street; and

Thence south along the east curbline of Porfirio Diaz Street to its intersection with the northeast curbline of Main Street;

Thence northwest along the northeast curbline of Main Street to its intersection with the southeast curbline of Fern Way;

Thence northeast along the southeast curbline of Fern Way to the northeast edge of the alley immediately northeast of Main Street;

Thence northwest along the northeast edge of the alley to its intersection with the centerline of West Yandell Drive;

Thence east along the centerline of West Yandell Drive to the point of beginning.

Zone B: No parking any time:

Beginning at the intersection of the centerlines of Seventh Street and Santa Fe Street;

Thence south along the centerline of Santa Fe Street to its intersection with the north boundary line of the Franklin Canal;

Thence northwest along the north boundary line of the Franklin Canal to its intersection with the northwest curbline of Bandera Street;

Thence northeast along the northwest curbline of Bandera Street to its intersection with the southwest curbline of Canal Street;

Thence northwest along the southwest curbline of Canal Street to the northwest property corner of Lot 18, Block H, Campbell Addition;

Thence northeast across one-half of Canal Street to its centerline;

Thence southeast along the centerline of Canal Street to its intersection with the centerline of Seventh Street;

Thence east along the centerline of Seventh Street to the point of beginning.

Zone C: No parking 8:00 a.m. to 2:00 p.m., Monday through Friday school days only, tow-away zone:

Beginning at the intersection of the west right-of-way line of North Oregon Street and Boston Avenue;

Thence east along the north right-of-way line of Boston Avenue to its intersection with the east right-of-way line of Campbell Street;

Thence south along the east right-of-way line of Campbell Street to its intersection with the north right-of-way line of New York Avenue;

Thence east along the south right-of-way line of New York Avenue to its intersection with the east right-of-way line of Rim Road;

Thence southwest along the east right-of-way line of Rim Road to its intersection with the east right-of-way line of North Oregon Street;

Thence north along the east right-of-way line of Oregon Street to the point of beginning.

Zone D: No parking 7:00 a.m. to 6:00 p.m. Monday through Friday:

Beginning at the intersection of the west right-of-way line of San Marcial Street and the north right-of-way line of Lebanon Street;

Thence east along the north right-of-way line of Lebanon Street to its intersection with the east right-of-way line of Byron Street;

Thence south along the east right-of-way line of Byron Street to its intersection with the south right-of-way line of Aurora Street;

Thence west along the south right-of-way line of Aurora Street to its intersection with the east right-of-way line of Luna Street;

Thence south along the east right-of-way line of Luna Street to its intersection with the south right-of-way line of Federal Street;

Thence west along the south right-of-way line from Federal Street to its intersection with the west right-of-way line of San Marcial Street;

Thence north along the west right-of-way line of San Marcial Street to the point of beginning.

Zone E: No parking 8:00 a.m. to 4:00 p.m., Monday through Friday:

Louisiana Street between McKelligon Canyon Road and Pierce Avenue, east side;

Louisiana Street, from a point 225' south of McKelligon Canyon Road and Pierce Avenue, west side.

Zone F: No parking any time:

Kansas Street both sides, between Mississippi Avenue and Boston Avenue;

Campbell Street, both sides, between Mississippi Avenue and Boston Avenue;

Mississippi Avenue, south side, between the alley west of Kansas Street to Campbell Street;

Baltimore Avenue, both sides, between the alley west of Kansas Street to Campbell Street;

Cincinnati Avenue, both sides, between the alley west of Kansas Street to Campbell Street;

Robinson Avenue, both sides, between the alley west of Kansas Street to Campbell Street.

Zone G: No parking any time:

Sixth Avenue between Oregon Street and Mesa Street, south side only.

Mesa Street between Sixth Avenue to a point 150 feet south, west side only.

Zone H: No parking any time:

Ochoa Street, 70 feet south of the curbline at Father Rahm Avenue to 140 feet south of the curbline at Father Rahm Avenue, west side only.

Zone I: No parking any time:

Virginia Street, west side, between Schuster Avenue and Cliff Drive.

Zone J: No parking any time:

North side of Crosby Avenue from Virginia Street west to the alley; South side of Crosby Avenue between Virginia Street and Ochoa Street.

Zone K: No parking 7:00 a.m. to 4:00 p.m., school days only:

1. Apache Pointe Drive;
2. Cartway Lane;
3. Darway Drive;
4. Eastridge Drive;
5. Fenway Drive;
6. Fury Pointe Place;
7. Glemmway Place;
8. Hawk Point Place;
9. Lone Point Court;
10. Navajo Point Drive;
11. Stonehaven Drive;
12. Tierra Angel Drive;
13. Tierra Alzada Drive;
14. Tierra Flor Drive;
15. Tierra Fresca Drive;
16. Tierra Fuego Drive.

Zone L: No parking any time:

Sixth Avenue between Mesa Street and the alley east of Mesa Street thereof, north side.

Zone M: No parking at any time:

Luna Street, from Frutas Avenue to the alley north thereof; Frutas Avenue from the property line between 3325 and 3331 Frutas Avenue to the property line between 3401 and 3403 Frutas Avenue.

Zone N: No parking 7:00 a.m. to 5:00 p.m., school days only:

1. Alex Guerrero Circle;
2. Frank Cordova Circle - 12143—12170;
3. Paseo Antiguo Drive;
4. Paseo Arena Place;
5. Paseo Colina Place;
6. Paseo de Amor Lane;
7. Paseo de Oro Lane;
8. Paseo del Prado Drive;
9. Paseo del Sol Place;
10. Paseo Granada Lane;
11. Paseo Segovia Place;
12. Paseo Solo Lane;
13. Pueblo Azul Lane;
14. Pueblo Corona Lane;
15. Pueblo Laguna Drive;
16. Pueblo Nubes Lane.
17. Tierra Murcia Street between Tierra Bilbao Drive and Charles Foster Avenue, both sides.
18. Petralia Avenue between Tierra Murcia Street and Wilhoit Place, both sides.
19. Tierra Oviedo Avenue between Tierra Murcia Street and Wilhoit Place, both sides.
20. Wilhoit Place between Ciambriello Avenue and Petralia Avenue, west side only.
21. Tierra Gijon Place between Tierra Bilbao Drive and Ciambriello Avenue, west side only.
22. Tierra Malaga Place between Tierra Bilbao Drive and Ciambriello Avenue, both sides.
23. Tierra Bilbao Drive between Tierra Murcia Street and Tierra Gijon Place, both sides.
24. Ciambriello Avenue between Tierra Murcia Street and Tierra Gijon Place, both sides.
25. Ciambriello Avenue between Wilhoit Place and Tierra Gijon Place, south side only.

Zone O: No parking any time - tow-away zone:

1. Campestre Lane, east side only;
2. 3720 E. San Antonio Avenue to 3828 E. San Antonio Avenue, south side only;
3. Gateway Boulevard south from E. San Antonio Avenue to Findley Avenue, west side only;
4. 3700 Findley Avenue to 3821 Findley Avenue, north side only;

5. 3808 Findley Avenue to 3816 Findley Avenue, south side only;

6. Alley between E. San Antonio Avenue and Findley Avenue, from Stevens Street to E. San Antonio Avenue, both sides;

7. S. Stevens Street from Findley Avenue to the alley of Findley Avenue, east side only;

8. S. Latta Street from E. San Antonio Avenue to Findley Avenue, both sides.

Zone P: No parking, tow-away zone, 8:00 p.m. to 4:00 a.m.

Common Drive, from Dale Douglas Drive to the property line between 1614 and 1618 Common Drive.

Zone Q: No parking 7:00 a.m. to 4:00 p.m., school days only:

Sterling Mary Way.

Milan Street from Quail Avenue to Naples Avenue, both sides.

Bill Collins Drive, both sides.

Zone R: No parking 8:00 a.m. to 5:00 p.m., school days only.

Beginning at the intersection of West Yandell Drive and the alley to the west of Los Angeles Drive;

Thence, north along the alley to the north curbline of West River Avenue;

Thence, east along the north curbline of West River Avenue to its intersection of the east curbline of Los Angeles Drive;

Thence, north along the east curbline of Los Angeles Drive to its intersection with the north curbline of West Cliff Drive;

Thence, east along the north curbline of West Cliff Drive to its intersection of the center line of North Oregon Street;

Thence, south along the center line of North Oregon Street to its intersection of the south curbline of West Rio Grande Avenue;

Thence, west along the south curbline of West Rio Grande avenue to its intersection of West Yandell Drive;

Thence, west along West Yandell Drive to the point of beginning.

Zone S: No parking, tow-away zone, 9:00 p.m. to 2:00 a.m.

Mettler Drive, from Hawkins Boulevard to Cessna Drive;

Hopewell Drive, from Hawkins Boulevard to Cessna Drive.

Zone T: No parking, 7:00 a.m. to 4:00 p.m., School Days Only:

Beginning at the intersection of Prince Edward Avenue and Rushing Road;

Thence, north along the centerline of Rushing Road to its intersection of Donald Drive;

Thence, east along the centerline of Donald Road to its intersection of McCombs Street;

Thence, south along the centerline of McCombs Street to its intersection of Prince Edward Avenue;

Thence, west along Prince Edward to the point of beginning.

Zone U: No parking, 9:00 a.m. to 10:00 p.m., everyday:

1. Beginning at the intersection of the centerline of West Yandell Drive with the southeast curbline of Fewel Street;

Thence southwest along the northeast curbline of Fewel Street to its intersection with the northeast curbline of Mundy Drive;

Thence northwest along the northeast curbline of Mundy Drive to its intersection with the west curbline of Lawton Drive;

Thence south along the west curbline of Lawton Drive to its intersection with the south curbline of Missouri Avenue;

Thence west along the south curbline of Missouri Avenue to its intersection with the east curbline of Porfirio Diaz Street; and

Thence south along the east curbline of Porfirio Diaz Street to its intersection with the northeast curbline of Main Street;

Thence east along the north curbline of Main Street/Interstate Highway 10 to its intersection with the northeast curbline of Yandell Drive;

Thence northwest along the northeast curbline of Yandell Drive to the point of beginning.

2. N. El Paso Street from W. Rio Grande Avenue to E. Yandell Drive.

Zone V: Educational parking district.

1. Parking allowed twenty-four hours a day, seven days a week

a. Mesita Early Childhood Development Center

Beginning at the intersection of the centerline of Yandell Drive with the northeast curb line of Lawton Street;

Thence south along the eastern curb line of Lawton Street to its intersection with the centerline of the alley between Prospect and Upson Streets;

Thence southeast along the centerline of the alley between Prospect and Upson Streets to its intersection with the northeast curb line of Los Angeles Street;

Thence south along the east curb line of Los Angeles Street to its intersection with the northeast curb line of Main Street;

Thence west along the north curb line of Main Street to its intersection with the northeast curb line of Yandell Drive;

Thence northeast along the northeast curb line of Yandell Street to the point of beginning.

Zone W: No stopping or standing, tow-away zone, 7:00 a.m. to 5:00 p.m. School days only:

1. Luis Gomez Place, both sides of the cul-de-sac.

Zone X: No parking, 8:00 a.m. to 5:00 p.m., Monday through Friday:

1. 1600 block of N Kansas Street, between E Schuster Avenue and E Crosby Avenue, west side only.

2. 1600 block of N Kansas Street, from E Schuster Avenue to a point 180 feet south of E Schuster Avenue, east side only.

3. 400 block of E Crosby Avenue, between the alley east of N Kansas Street and N Campbell Street, north side only.

4. 400 block of E Crosby Avenue, between N Kansas Street and N Campbell Street, south side only.

5. 500 block of E Crosby Avenue, between N Campbell Street and N Florence Street, north side only.

6. 500 block of E Crosby Avenue, between the alley east of N Campbell Street and N Florence Street, south side only.

7. 1600 block of N Florence Street, from 115 feet south of E Schuster Avenue to E Crosby Avenue, west side only.

8. 1600 block of N Florence Street, between E Schuster Avenue and E Crosby Avenue, east side only.

9. 1600 block of N Campbell Street, between E Schuster Avenue and E Crosby Avenue, west side only.

10. 1600 block of N Campbell Street, from a point 170 feet south of E Schuster Avenue to E Crosby Avenue, east side only.

Zone Y: No parking any time, decal required:

1. 6629 McFarland Avenue to 6765 McFarland Avenue, both sides;

2. 300 Del Palmar Court to 309 Del Palmar Court, both sides;

3. 200 Playa Tronones Avenue to 309 Playa Tronones Avenue, both sides;

4. 6601 La Puesta Drive to 6765 La Puesta drive, both sides;

5. 6700 Ixtapa Place to 6765 Ixtapa Place, both sides;

6. 300 McFarland Circle to 312 McFarland Circle, both sides. (Ord. 16935 § 1, 2008; Ord. 16899 § 1, 2008; Ord. 16892 § 1, 2008; Ord. 16870 § 1, 2008; Ord. 16852 § 1, 2008; Ord. 16827 § 1, 2008; Ord. 16758 § 1, 2007; Ord. 16692 § 1, 2007; Ord. 16643 § 1, 2007; Ord. 16595 § 1, 2007; Ord. 16591 § 1, 2007; Ord. 16550 § 1, 2007; Ord. 16517 § 1, 2006; Ord. 16341 § 1, 2006; Ord. 16340 § 1, 2006; Ord. 16299 § 1, 2006; Ord. 16216 § 1, 2005; Ord. 16172 § 1, 2005; Ord. 16150 § 1, 2005; Ord. 15940 § 1, 2004; Ord. 15955 § 1, 2004; Ord. 15969 § 1, 2004; Ord. 15760 § 1, 2004; Ord. 15583 § 1, 2003; Ord. 15582 § 1, 2003; Ord. 15142 § 1, 2002;

Ord. 14130 § 1, 1999; Ord. 12594 § 1, 1995; Ord. 11683 § 1, 1993; Ord. 11257 § 1, 1992; Ord. 10694 § 2, 1991)
(Ord. 17031, § 1, 12-2-2008; Ord. No. 17149, § 1, 7-21-2009; Ord. No. 17151, § 1, 7-21-2009; Ord. No. 17794, § 1, 5-29-2012; Ord. No. 18163, § 1, 4-15-2014; Ord. No. 18345, § 1, 4-21-2015; Ord. No. 18351, § 1, 5-5-2015; Ord. No. 18363, § 1, 6-2-2015; Ord. No. 18365, § 1, 6-2-2015; Ord. No. 18408, § 1, 8-18-2015; Ord. No. 18731, § 1, 9-19-2017; Ord. No. 18821, § 1, 7-24-2018; Ord. No. 18868, § 1, 10-30-2018; Ord. No. 18918, § 1, 3-19-2019; Ord. No. 19309, §§ 4, 5, 3-15-2022; Ord. No. 019576, § 1, 12-5-2023; Ord. No. 019601, § 2, 3-12-2024; Ord. No. 019706, § 1, 1-22-2025; Ord. No. 019763, §§ 1, 2, 7-22-2025; Ord. No. 019764, § 1, 7-22-2025)

12.88.210 Schedule XVIII—Restrictions on commercial vehicle parking on residential streets.

In accordance with Section 12.88.030 and when signs are erected giving notice thereof no person shall at any time park a commercial van or commercial truck upon any of the following described streets or parts of streets:

1. Reserved;
2. Reserved. (Ord. 14976 § 2, 2001)

(Ord. No. 17944, § 1, 2-5-2013)

12.88.220 Schedule XIX—Restrictions on parking in downtown parking districts.

In accordance with Section 12.44.290 and when meters are marked giving notice thereof, no person shall park a motor vehicle on a city street in a curbside metered parking space on any day or during any hours in a downtown parking district unless a coin or coins of United States currency, tokens, a parking meter debit card, or other approved payment method of the appropriate denominations shall have been deposited therein, or shall have been previously deposited therein for an unexpired interval of time, and such meter has been placed in operation, without the display of a downtown parking district parking permit issued by the permit official within the districts or upon the streets or parts of streets as follows:

Zone A: Beginning at the intersection of the centerline of West Wyoming Avenue with the centerline of North Santa Fe Street,

Thence northeast along the centerline of West Wyoming Avenue/East Wyoming Avenue to its intersection with the centerline of North Campbell Street,

Thence southeast along the centerline of North Campbell Street to its intersection with the centerline of East Main Street,

Thence southwest along the centerline of East Main Street/West Main Street to its intersection with the centerline of North Santa Fe Street,

Thence northwest along the centerline of North Santa Fe Street to its intersection with the centerline of West Missouri Avenue,

Thence southwest along the centerline of West Missouri Avenue to its intersection with the centerline of North Durango Drive,

Thence south along the centerline of North Durango Drive until it reaches its closest point to the easternmost boundary of the lot with the legal description "Lot 30, Block C, Stevens Addition Replat B",

Thence west along the southern boundary of said lot with the legal description "Lot 30, Block C, Stevens Addition Replat B" until it reaches the most southeastern point of the boundary of "Block C, Stevens Addition",

Thence west along the southernmost boundary of "Block C, Stevens Addition" until it reaches the most southwestern boundary of "Block C, Stevens Addition",

Thence west along the existing southernmost boundary of "Block 13, Sunset Heights" until it reaches the most southwestern boundary of "Block 13, Sunset Heights",

Thence north along the existing westernmost boundary of "Block 13, Sunset Heights" until it reaches the most northwestern boundary of "Block 13, Sunset Heights",

Thence in a northeasterly direction to the starting point of the centerline of the Interstate Highway 10 eastbound Exit 19 off-ramp,

Thence in a northeasterly direction along the centerline of the Interstate Highway 10 eastbound Exit 19 off-ramp to the point of beginning.

Zone B: Beginning at the intersection of the centerlines of East San Antonio Avenue and North Campbell Street,

Thence in a northwesterly direction along the centerline of North Campbell Street to its intersection with the centerline of East Mills Avenue,

Thence northeast along the northern boundary of East Mills Avenue until it meets the east curb line of North Virginia Street,

Thence southeast along the east curb line of North Virginia Street to the nearby alley's southern boundary,

Thence northeast along the southern boundary of the alley to its intersection with the centerline of Octavia Street,

Thence southeast along the centerline of Octavia Street to its intersection with the alley of Block 1, Franklin Heights Addition,

Thence southwest along said alley to its intersection with the boundary line between Lots 21 and 22 of Block 1, Franklin Heights Addition,

Thence southeast along said boundary to its intersection with the centerline of Magoffin Avenue,

Thence southwest along the centerline of Magoffin Avenue to its intersection with the centerline of Saint Vrain Street,

Thence southeast along the centerline of Saint Vrain Street to its intersection with the centerline of Olive Avenue,

Thence northeast along the centerline of Olive Avenue to its intersection with the west boundary line of the property with legal description "East 80 feet of Block O, Campbell Addition",

Thence southeast along said boundary to its intersection with the centerline of East San Antonio Avenue,

Thence southwest along the centerline of East San Antonio Avenue to the point of beginning.

Zone C: Beginning at the intersection of the centerlines of East San Antonio Avenue and South Campbell Street,

Thence northeast along the centerline of East San Antonio Avenue until it reaches its closest point to the western boundary of the lot with the legal description "East 80 feet of Block O, Campbell Addition",

Thence northeast along the north side of East San Antonio Avenue until it is directly across from the boundary line between Lots 19 and 20, Block 80, Magoffin Addition,

Thence southeast following said boundary line to the centerline of the alley of Block 80, Magoffin Addition,

Thence northeast along said alley to the east boundary line of Block 80, Magoffin Addition,

Thence southeast along Block 80 to the centerline of East Overland Avenue,

Thence southwest along the centerline of East Overland Avenue to its intersection with the centerline of South Saint Vrain Street,

Thence southeast along the centerline of South Saint Vrain Street to its intersection with the centerline of Paisano Drive,

Thence in a southwesterly direction along the centerline of Paisano Drive to its intersection with the centerline of South Campbell Street,

Thence northwest along the centerline of South Campbell Street to the point of beginning.

Zone D: Beginning at the intersection of the centerlines of East San Antonio Avenue and South Campbell Street,

Thence southeast along the centerline of South Campbell Street to its intersection with the centerline of Paisano Drive,

Thence in a westerly direction along the centerline of Paisano Drive to its intersection with the centerline of South Santa Fe Street,

Thence northwest along the centerline of South Santa Fe Street to its intersection with the centerline of West San Antonio Avenue,

Thence northeast along the centerline of West San Antonio Avenue to its intersection with the centerline of South El Paso Street,

Thence northwest along the centerline of South El Paso Street to its intersection with the centerline of East San Antonio Avenue,

Thence northeast along the centerline of East San Antonio Avenue to the point of beginning.

Zone E: Beginning at the intersection of the centerlines of West San Antonio Avenue and South Santa Fe Street,

Thence southeast along the centerline of South Santa Fe Street to its intersection with the centerline of Paisano Drive,

Thence in a northwesterly direction along the centerline of Paisano Drive to its intersection with the centerline of West San Francisco Street,

Thence north and east along the centerline of West San Francisco Street to its intersection with the centerline of South Durango Street,

Thence northwest along the centerline of North Durango Street to its intersection with the centerline of railroad ROW,

Thence northeast along railroad ROW to its intersection with the centerline of North Santa Fe Street,

Thence southeast along the centerline of North Santa Fe Street to the point of beginning.

Zone F: Beginning at the intersection of the centerlines of East Main Street and North Campbell Street,

Thence in a southeasterly direction along the centerline of North Campbell Street to its intersection with the centerline of East San Antonio Avenue,

Thence southwest along the centerline of East San Antonio Avenue to its intersection with the centerline of South El Paso Street,

Thence southeast along the centerline of South El Paso Street to its intersection with the centerline of West San Antonio Avenue,

Thence southwest along the centerline of West San Antonio Avenue to its intersection with the centerline of North Santa Fe Street,

Thence in a northwesterly direction along the centerline of North Santa Fe Street to its intersection with the centerline of West Main Street,

Thence northeast along the centerline of West Main Street/East Main Street to the point of beginning.

Zone G: Beginning at the intersection of the centerlines of East Father Rahm Avenue and South Kansas Street,

Thence southeast along the centerline of South Kansas Street to its intersection with the centerline of Cesar Chavez Memorial Highway,

Thence southwest along the centerline of Cesar Chavez Memorial Highway to its intersection with the centerline of South Oregon Street,

Thence northwest along centerline of South Oregon Street to its intersection with the centerline of East Father Rahm Avenue,

Thence northeast along the centerline of East Father Rahm Avenue to the point of beginning.

Zone H: Beginning at the intersection of the centerlines of Paisano Drive and South Kansas Street,

Thence southeast along the centerline of South Kansas Street to its intersection with the centerline of East Father Rahm Avenue,

Thence southwest along the centerline of East Father Rahm Avenue to its intersection with the centerline of South Oregon Street,

Thence southeast along the centerline of South Oregon Street to its intersection with the centerline of East Sixth Avenue,

Thence southwest along the centerline of East Sixth Avenue until it meets the west curb line of South El Paso Street,

Thence northwest along the west curb line of South El Paso Street to its intersection with the south curb line of Father Rahm Avenue,

Thence southwest along the south curb line of Father Rahm Avenue until it meets with the centerline of South Santa Fe Street,

Thence northwest along the centerline of South Santa Fe to its intersection with the centerline of Paisano Drive,

Thence northeast along the centerline of Paisano Drive to the point of beginning.

(Ord. No. 18154, § 2, 4-1-2014)

12.88.230 Schedule XX—Parking benefit districts.

In accordance with Chapter 12.58 of this Code, a parking benefit district is an area in which a percentage of funds collected from paid curbside parking spaces or parking spaces in a city parking facility within the district are used to fund improvements within the district. The following are hereby designated parking benefit districts.

Uptown parking benefit district

Beginning at the southwest comer of Oregon Street and Rim Road,

Thence north along the western boundary of Oregon Street to its intersection with the northern boundary of Glory Road,

Thence east along the northern boundary of Glory Road to its intersection with the eastern boundary of North Mesa Street,

Thence north along the eastern boundary of North Mesa Street to its intersection with the southern boundary of Gregory Avenue,

Thence east along the southern boundary of Gregory Avenue to its intersection with the western boundary of Stanton Street,

Thence south along the western boundary of Stanton Street to its intersection with the northern boundary of Coffin Avenue,

Thence east along the northern boundary of Coffin Avenue to its intersection with the eastern boundary of Florence Street.

Thence south along the eastern boundary of Florence Street to its intersection with the southern boundary of Robinson Avenue,

Thence west along the southern boundary of Robinson Avenue to its intersection with the eastern boundary of Campbell Street,

Thence south along the eastern boundary of Campbell Street to its intersection with the northern boundary of New York Avenue,

Thence east along the northern boundary of New York Avenue to its intersection with the eastern boundary of North Saint Vrain St,

Thence east along the southern boundary of Arroyo Park to its intersection with the eastern boundary of Rim Road,

Thence west along the southern boundary of Rim Road to the point of beginning.

(Ord. No. 18761, § 2, 3-6-2018; Ord. No. 18762, § 5, 3-6-2018; Ord. No. 019771, § 1, 8-19-2025)

Chapter 12.90

PARKING RESTRICTIONS ALONG STREETCAR ROUTE

Sections:

12.90.010 Definitions.

12.90.030 No stopping, standing, or parking—Tow-away zone.

12.90.050 Designated parking areas along streetcar route.

12.90.070 Enforcement.

12.90.090 Penalty.

12.90.010 Definitions.

A. "Designated parking area(s)" means areas along the streetcar route that are marked by a sign and pavement markings to designate the specific location where a person is allowed to park a vehicle.

B. "Streetcar" means the rail mass transit system, including infrastructure and railcars, owned and operated by the City of El Paso.

C. "Streetcar route" means the following streets on which the streetcar is located: Santa Fe Street from Father Rahm to Franklin Avenue; Franklin Avenue from Santa Fe Street to Kansas Street; Stanton Street from Franklin Avenue to Baltimore Avenue; Baltimore Avenue from Stanton Street to Oregon Street; Oregon Street from Baltimore Avenue to Franklin Avenue; and Kansas Street from Franklin Avenue to Father Rahm.

D. "Traffic engineer" means the employee designated by the city manager who is trained and qualified to perform the duties of the traffic engineer as set forth within this code.

(Ord. No. 18872, § 1, 11-13-2018)

12.90.030 No stopping, standing, or parking—Tow-away zone.

A. Except as provided in Section 12.90.050 below, when signs are erected and/or the curb is painted yellow giving notice thereof, no person shall at any time stop, stand, or park a vehicle on any side of a street within the streetcar route.

(Ord. No. 18872, § 1, 11-13-2018)

12.90.050 Designated parking areas along streetcar route.

A. A person may park a vehicle within the streetcar route in a designated parking area.

B. A person parking a vehicle in a designated parking area shall not park the vehicle in a manner in which any part of the vehicle is outside of the boundaries of the designated parking area.

C. If a parking meter is installed next to a designated parking area, then a person parking a vehicle in a designated parking area shall pay the fee required by the parking meter for use of the designated parking area.

(Ord. No. 18872, § 1, 11-13-2018)

12.90.070 Enforcement.

A. The traffic engineer is authorized to install, remove, and modify all signs and markings necessary to carry out the provisions of this chapter. The traffic engineer is also authorized to establish and modify the locations of designated parking areas.

B. The police department is authorized to issue citations and to cause to be towed away any vehicle found stopping, standing, or parking in violation of this chapter.

(Ord. No. 18872, § 1, 11-13-2018)

12.90.090 Penalty.

A. An owner of a vehicle that is found stopping, standing, or parking in violation of this chapter shall be civilly liable to the towing company performing the towing of the vehicle pursuant to a request from the police department as provided under this chapter.

B. In addition to the civil liability above, any person violating any provision of this chapter shall be deemed guilty of a misdemeanor and be punished by a fine not to exceed five hundred dollars. For violations under this chapter that are of a continuing nature, each day that the violation continues shall constitute a separate offense.

(Ord. No. 18872, § 1, 11-13-2018)

Title 13

STREETS, SIDEWALKS AND PUBLIC PLACES

Chapters:

13.02	Street and International Bridges Departments
13.04	Street and Sidewalk Construction and Maintenance
13.06	Engineering and Construction Management Department
13.08	Excavations
13.12	Driveways
13.16	Insurance Requirements for Work Within Right-of-Way of Public Streets and Alleys
13.20	Miscellaneous Street and Sidewalk Use Regulations
13.24	City Park and Recreation Areas
13.25	El Paso Zoo
13.28	Sound Amplifying Devices
13.30	Film-Making Events
13.32	Temporary Events
13.34	Picketing
13.36	Parades and Public Assemblies
13.38	Special Events
13.40	Graffiti Abatement
13.42	Streetcar Track Access Program Procedure

Chapter 13.02

STREET AND INTERNATIONAL BRIDGES DEPARTMENTS

Sections:

13.02.010 Creation and purpose of the department of transportation.

13.02.020 Staffing of the department of transportation.

13.02.030—13.02.040 Reserved.

13.02.050 Creation and purpose of the international bridges department.

13.02.060 Staffing of the international bridges department.

13.02.010. Creation and purpose of the department of transportation.

A. There is established in the City of El Paso, the Department of Transportation, which shall generally provide for the planning, management, oversight and administration of maintenance and program improvements for the city's multi-modal transportation network.

B. The primary function of the department shall be the planning, development, management, oversight and administration of maintenance and program improvements for the city's multi-modal transportation network and traffic control infrastructure; staff, maintain and operate the traffic management center; conduct street sweeping and maintenance operations for city owned street infrastructure, traffic control infrastructure, street medians, shoulders, and alleys, to include the aesthetic improvements, and other city owned rights-of-way; oversight of capital improvement projects relating to the multi-modal transportation network; management of a city-wide pavement management system; maintain and manage the city's major thoroughfare plan; administration of street maintenance and restoration practices such as resurfacing, patching, sealing, and paving; installation and operational maintenance of traffic signalization infrastructure; installation and maintenance of street signage and pavement markings; management of the city's graffiti removal program; and to generally perform duties and services relating to planning, management, maintenance and liaison relating to the city's multi-modal transportation network as to be determined by the city manager.
(Ord. 16969 § 2, 2008)
(Ord. No. 17385, § 2, 8-24-2010, eff. 9-1-2010)

13.02.020. Staffing of the department of transportation.

A. The department shall be staffed by a department director and such other appropriate positions as are authorized by the council.

B. The department director shall be responsible for the performance of duties as assigned by other ordinances of the city including but not limited to the duties of the traffic engineer, provided however, that the city manager may reassign such duties to other departments and staff, as he deems appropriate.
(Ord. No. 17385, § 3, 8-24-2010, eff. 9-1-2010)

13.02.030—13.02.040 Reserved.

13.02.050 Creation and purpose of the international bridges department.

A. There is established the international bridges department in the City of El Paso, which shall generally provide for the capital and fiscal management and operation of city-owned international bridge crossings and parking meters.

B. The primary function of the department shall be the capital and fiscal management and operation of city-owned international bridge crossings and parking meters, including the maintenance and upgrade of assets and facilities; facilitation of efficient and reliable cross border mobility and international commerce; the provision of convenient, efficient and reliable cross border mobility at an appropriate cost while facilitating international commerce; the expansion of facilities, assets and services where appropriate; the provision of collection and payment services for bridge tolls and parking meter fees, and the efficient management of parking meters; and to generally per-

form duties and services relating to areas of international crossings and parking meter concerns as to be determined by the city manager. (Ord. 16969 § 5, 2008)

13.02.060 Staffing of the international bridges department.

A. The department shall be staffed by a department director and such other appropriate positions as are authorized by the council or established in accordance with a process established by a city budget resolution.

B. The department director shall be responsible for the performance of duties as assigned by other ordinances of the city, provided however, that the city manager may reassign such duties to other departments and staff, as he deems appropriate. (Ord. 16969 § 6, 2008)

Chapter 13.04

STREET AND SIDEWALK CONSTRUCTION AND MAINTENANCE

Sections:

13.04.010 Sidewalk and curb permit required.

13.04.015 Sidewalk permits and fees.

13.04.020 Sidewalk specifications.

13.04.045 Sidewalks in new development.

13.04.050 Maintenance of sidewalks, curbs and gutters—Abutting property owner's duty.

13.04.060 Maintenance of streets and drainage by streetcar and railroad companies.

13.04.070 Installation of sidewalk on property on which building permit issued.

13.04.080 Recording paving proceedings and ordinances.

13.04.010 Sidewalk and curb permit required.

A. Except as otherwise provided in this Code, no person shall construct, alter or repair any sidewalk or curb or change the grade thereof within the city's right-of-way without a permit. A permit under this chapter shall not be required for sidewalk and/or curb construction, alteration or repair that is included in a permit issued pursuant to Chapter 13.08. Permits under this section shall be issued only by the permit official. The permit official shall not issue any permit under this section without receiving the approval of the traffic engineer. In granting or refusing such permit the traffic engineer shall consider and be guided by the need for the proposed cut or alteration, the amount and pattern of traffic at the location in question, safety factors and the hazards likely to be created. The permit official may suspend a permit for noncompliance with the requirements of this chapter. The permit official shall provide notice of suspension of the permit to the permittee, at which time the permittee shall cease the work allowed under the permit and shall not resume work until authorized to do so by the permit official. Any person aggrieved by the decision concerning the issuance, denial, revocation or suspension of a permit issued under this chapter may appeal such decision to the appeals officer in accordance with the requirements and procedures of Chapter 2.30.

B. No person shall cut or alter any sidewalk or curb, whether for the purpose of vehicular access to property or otherwise without permission of the traffic engineer, and in accordance with specifications prescribed by him. In granting or refusing such permission the traffic engineer shall consider and be guided by the need for the proposed cut or alteration, the amount of traffic at the location in question, and the hazards likely to be created. Any person aggrieved by the decision of the traffic engineer may appeal to the city council.

C. The permit official will issue sidewalk permits and will enforce the requirements of this chapter for all properties. The city manager and his designees, including but not limited to the code enforcement division and the director of the city development department and his designees, will enforce the requirements of this chapter for streets, alleys and other paved portions of street rights-of-way. (Ord. 16982 § 1, 2008: Ord. 13956 §§ 1, 2, 1999; Ord. 13152 § 103, 1997; Ord. 12248 (part), 1995: prior code § 19-13)
(Ord. No. 17391, § 1, 8-24-2010, eff. 9-1-2010; Ord. No. 17487, § 2, 1-18-2011; Ord. No. 17803, § 1, 6-5-2012, eff. 6-11-2012; Ord. No. 019759, § 1, 7-22-2025)

13.04.015 Sidewalk permits and fees.

A. No person shall construct a sidewalk within the city limits without first obtaining a sidewalk construction permit issued in accordance with this title. No permit is required if the sidewalk is covered by a valid building permit or is part of a street improvement plan.

B. Permits issued pursuant to this chapter shall be valid for six months from the date of issuance.

C. An applicant requesting a sidewalk construction permit shall be responsible for contacting a "one call" notification system servicing the area and will be required to furnish written verification confirming that such a "one call" has been made as part of the application for permit. A sidewalk construction permit issued under this chapter may be denied for the failure of the applicant to contact a "one call" notification system servicing the area and to provide a verification number confirming that such a "one call" notification system has been contacted by the applicant. This requirement however, shall create no duty, express or implied, on the part of the city to verify that such a "one call" has been made by the applicant.

D. The standard fee for a sidewalk permit shall be as established in the annual budget resolution adopted by city council. The fee for a permit to construct a sidewalk, as required through order of the city following a determination by the traffic engineer as provided in Section 13.04.040, shall be waived. (Ord. 16982 § 2, 2008; Ord. 15750 § 1, 2004: Ord. 13956 § 3, 1999; Ord. 13152 § 104, 1997; Ord. 13062 § 16, 1997; Ord. 12846 § 2, 1996; Ord. 12248 (part), 1995: Ord. 12111 § 1, 1994; Ord. 11709, 1993: Ord. 10905 § 1, 1992)
(Ord. No. 17391, § 2, 8-24-2010, eff. 9-1-2010; Ord. No. 19077, § 1, 8-4-2020)

13.04.020 Sidewalk specifications.

A. All sidewalks hereafter constructed shall conform to the following specifications, except as otherwise authorized under subsection B of this section:

1. Sidewalks shall be carried out neatly to the required line and grade established by the city manager's designee;

2. Prior to the construction of the subgrade, all stones, roots, vegetation and other deleterious material shall be removed from the job site;

3. The subgrade shall be thoroughly compacted to a compaction which is not less than ninety percent for noncohesive soils and eighty-five percent for cohesive soils as determined by ASTM D 1557. Tests may be ordered by the city manager's designee;

4. Class A concrete shall be a minimum of three thousand psi comprehensive strength. Subgrade shall be thoroughly wetted before placing concrete;

5. Cement shall be type I Portland cement ASTM C 150 and shall conform to the standard specification. Water used for mixing shall be suitable for drinking purposes and fine and coarse aggregates shall be well graded, clean and shall conform to the standard specifications of the city;

6. Sidewalks shall have a minimum nominal thickness of four inches;

7. Sidewalks shall rise from the elevation of the top of the curb with a minimum slope of one-fourth inch per foot across the sidewalk;

8. Concrete shall be placed and tamped to a dense mass in such a way that all materials will remain well distributed;

9. Contraction joints shall be placed at five-foot intervals and may be struck when concrete is uncured or saw cut after setting;

10. Sidewalks adjacent to buildings, curbs, driveway aprons, ADA ramps, or other concrete structures shall be separated from existing structures with a one-half inch expansion joint to the full depth of slab;

11. The finished surface of the sidewalk shall be floated and wire brushed or broomed to provide a nonskid wearing surface, or other finish as approved by the city engineer;

12. All concrete sidewalks shall be properly cured;

13. Sidewalks shall be a minimum of five feet wide within a public street right-of-way unless a subdivision is platted using the hierarchy of residential streets as allowed under Chapter 19.36 of this code, four-foot wide sidewalks shall be allowed.

B. The city engineer may authorize different specifications which conform to good engineering practices.

C. No person shall construct or employ any other person to construct any sidewalk or driveway within the right-of-way of any city street or alley except in accordance with the specifications set forth in this section or other specifications authorized pursuant to Section 13.04.020(B).

D. Requirements of this section are appealable to the city council for final action.

E. Contractor stamps may be allowed provided that the stamp imprints comply with the following requirements and specifications:

1. Individual imprints from the stamps shall cover an area no larger than one-half square foot. The imprint shall not penetrate the concrete by more than one-quarter of an inch at the imprint's deepest point. If a logo is included, the size of the entire imprint, including the name and date, cannot exceed one-half square foot and must conform to the requirements stated above. There shall be no vertical or sharp edges that would allow any object to be caught, causing tripping or other potential hazards. All stamps must be approved by the city engineer or designee, solely at their discretion, for content and form before use.

2. No more than four stamp imprints per normal block shall be placed and the exact locations must be approved in advance by the city engineer or designee. The stamp shall display the contractor's name or initials and shall show the month and year of the imprint. (Ord. 16856 §§ 1—3, 2008; Ord. 13956 §§ 4, 5, 6, 1999; Ord. 13152 § 105, 1997; Ord. 10905 § 2, 1992: Ord. 10600 § 3, 1991: prior code § 19-13.1)

13.04.045 Sidewalks in new development.

A. Where required. Sidewalks shall be required within all public and private street rights-of-way within new development as follows:

1. Local Residential Streets.

a. Sidewalks shall be required on all local residential street classifications, except on:

i. Mountain residential streets within the mountain development area and within an approved subdivision; or

ii. Alleys within an approved subdivision; or

iii. Local residential streets within an approved subdivision where all the lots provide a minimum one-half acre lot area, and the adjoining properties have no sidewalks; or

iv. Local residential streets within an approved subdivision where a determination has been made by the director of the city development department that the sidewalks will impede drainage; or

v. Local residential streets within an approved subdivision where a street construction project, whether local, state or federal, has been awarded and the project includes construction of the sidewalks; or

vi. Local residential streets within an approved subdivision which meet all of the following criteria as determined by the city plan commission:

(A) A characteristic of the neighborhood is that no sidewalks have been required to date, and

(B) The subdivision adjoins or lies within a neighborhood in which buildings or structures have been constructed on at least fifty percent of the lots within the neighborhood, and

(C) The type of subdivision and intensity of land use is compatible with the character of the neighborhood; or

vii. Reserved.

viii. Local residential streets within an approved planned unit development where pedestrian access is provided within the approved subdivision through an alternative sidewalk design not installed within the street right-of-way.

b. Where required, sidewalks shall be installed on both sides of the local residential street right-of-way and shall be located adjacent to the property line and parallel to the curbline.

c. Required sidewalks may be located adjacent to and parallel with the curbline only under the following circumstances:

i. On the turnaround portion of a cul-de-sac street; or

ii. On the rear side of a double-front lot when all of the following apply:

(A) The subdivision design provides for single-loaded streets, and

(B) Both street frontages are local residential streets, and

(C) The sidewalk is flared to a minimum width of seven feet along the curb radius at a street intersection, and

(D) The sidewalk is wide enough to provide a minimum clear width of three feet at encroachments, including street lights, traffic signs, neighborhood delivery collection box units, utility installations, or other facilities; or

iii. On a local residential street where an existing sidewalk on an adjoining property is located adjacent to and parallel to the curbline, and the city plan commission determines that a public benefit would result from permitting the new sidewalk to be similarly designed and constructed.

d. Where a sidewalk is installed adjacent to the curbline, it shall be allowed to meander between the property line and the curbline to avoid encroachments, such as street lights, traffic signs, neighborhood delivery collection box units, utility installations or other facilities.

2. Arterial Streets.

a. Sidewalks shall be required on all arterial street classifications, except on arterial streets which meet the following criteria as determined by the city plan commission:

i. Arterial streets within an approved subdivision where a street construction project, whether local, state or federal, has been awarded and the project includes construction of the sidewalks; or

ii. Arterial streets within an approved subdivision that is on property zoned C-4, M-1, M-2, M-3 or P-I, and all of the following apply:

(A) No sidewalks exist on the adjoining properties, and

(B) A determination is made by the city plan commission that the development is within an area in which there is no foreseeable need to provide sidewalks for pedestrian traffic, or

iii. Arterial streets within an approved subdivision that is on property zoned C-4, M-1, M-2, M-3 or P-I, and all of the following apply:

(A) The total arterial street right-of-way width is seventy feet or less, and

(B) The arterial street provides access to only one development, and functions as internal circulation within the development, or

iv. Arterial streets where the location of sidewalks would be so unsafe for pedestrians that the risk to the public outweighs the benefits to the public; or

v. Arterial streets where the installation of sidewalks is expressly prohibited by ordinance.

b. Where required, sidewalks shall be installed on both sides of the arterial street right-of-way and shall be located adjacent to the property line and parallel to the curbline. A sidewalk shall be allowed to meander between the curbline and the property line to avoid encroachments, such as street lights, traffic signs, neighborhood delivery collection box units, utility installations, or other facilities.

c. Required sidewalks may be located adjacent to and parallel with the curbline when all of the following apply:

i. The sidewalk is a minimum of seven feet wide; and ii. The sidewalk is wide enough to provide a minimum clear width of three feet at encroachments, including street lights, traffic signs, traffic control devices, utility installations, or other facilities.

B. Sidewalk Construction.

1. Local Residential Streets. Sidewalks required within an approved subdivision shall be installed as soon as reasonably possible after the first building permit is issued for each lot, or portion thereof, within the subdivision. The property owner of the lot, or portion thereof, for which a building permit has been issued shall be responsible for construction of the sidewalk. No certificate of occupancy shall be issued until the sidewalk has been inspected and approved by the director of the city development department or his designee

2. Arterial Streets.

a. Where sidewalks are required within an approved subdivision, the construction may be deferred until ordered by the city as provided in Section 13.04.040. The city plan commission may, as part of the subdivision approval, approve a

deferral of the construction of sidewalks when the arterial street is designed to serve residential double-front lots; and the residential double-front lots are provided primary access through a fully improved local residential street; and the arterial street for which a sidewalk deferral is to be authorized provides frontage to the rear side of the residential double-front lots; and the improvement of the arterial street is delayed due to a partial dedication of the arterial street right-of-way within the approved subdivision.

b. Sidewalks required within an approved subdivision shall be installed as soon as reasonably possible, after the first building permit is issued for each lot, or portion thereof, within the subdivision; except where a sidewalk deferral was approved by the city plan commission as part of the subdivision approval. The property owner of the lot, or portion thereof, for which a building permit has been issued shall be responsible for construction of the sidewalk. No certificate of occupancy shall be issued until the sidewalk has been inspected and approved by the director of the city development department or his designee.

c. Where a sidewalk deferral is approved by the city plan commission as part of an approved subdivision, the property owner of the lot, or portion thereof, for which the deferral was granted, shall be required to deposit the funds necessary to pay the cost for the future installation of the sidewalk by the city or an agent of the city.

i. The amount of the deposit shall be the future value of the sidewalk construction, determined as follows: Three dollars and thirty cents per square foot factored for ten years at an inflation rate of five percent, multiplied by the total lot frontage on the street, multiplied by the width of the sidewalk.

ii. The funds shall be deposited in full with the city prior to the issuance of any building permit. A deposit made pursuant to this subsection shall be tendered in the form of a cash payment, or cashier's check made payable to the City of El Paso. Funds received shall be reserved for sidewalk construction with reference to the individual subdivision involved.

iii. After having deposited funds with the city in accordance with this provision, the owner of the property for which the funds were deposited may at any time, but not more often than once in any twelve-month period, request the city council to determine whether it has become practical for the city to install the sidewalks. From the date of receipt of such a request, the city council shall have ninety days to render its determination. If the city council fails to do so, it shall be deemed practical for the city to install the sidewalk. Construction of a deferred sidewalk within a subdivision shall be completed within one year from the date the city council, after having obtained recommendations from the city manager or designee and the city plan commission, determines that it is practical for the city to install the sidewalks. The recommendation shall include an opinion from the city attorney as to whether the city has the legal authority to install the sidewalks under the circumstances. The term "practical," as used in this subsection, does not include consideration of whether the city has funds available to supplement the cost of installing the sidewalks. If it is determined by the city council that it is practical to install the sidewalks, and if the deferred sidewalk is not installed by the city as herein required, the property owner who deposited the funds shall, upon written request, be entitled to a full refund of monies paid within thirty days of receipt by the city of the request for the refund. (Ord. 16982 § 3 (part), 2008; Ord. 13956 §§ 13, 14, 15, 1999; Ord. 13152 § 107, 1997; Ord. 12835 § 1, 1996: Ord. 12248 (part), 1995: Ord. 10600 § 4, 1991)
(Ord. No. 17391, § 3, 8-24-2010, eff. 9-1-2010; Ord. No. 17741, § 1, 3-6-2012; Ord. No. 17803, § 2, 6-5-2012, eff. 6-11-2012)

13.04.050 Maintenance of sidewalks, curbs and gutters—Abutting property owner's duty.

A. It shall be the duty of the owner of property abutting on any public street containing a sidewalk, curb or gutter to keep such sidewalk, curb or gutter in repair.

B. When the director of the environmental services department or his designee or member of the code enforcement division finds that any such sidewalk, curb or gutter is in hazardous condition because of need of repairs or faulty construction, he may notify the owner of the abutting property to make such repairs or changes as may be necessary to put the sidewalk, curb or gutter in safe condition. If the owner fails to make such repairs or changes within a reasonable time given in the notice, he shall be deemed guilty of a misdemeanor and punished as provided in Sections 1.08.010 through 1.08.030.

C. If the owner fails to comply with the notice, the city council may authorize the work to be done by city forces or by contract, and may, after notice and an opportunity to be heard, assess the actual cost of the repairs against the abutting property and its owner. The ordinance of the city council making the assessment shall be recorded in the county clerk's office and the assessment shall then constitute a first and prior lien against the property from the date the improvements are ordered, and shall be a personal liability and charge against the owner of the property.

D. Notice to the owner may be given in person or by mail, or may be given to any agent authorized by the owner to collect the rents or make repairs on the property.

E. The owner of property abutting on any public street containing a sidewalk, curb or gutter that has become defective and has resulted in causing damage or injury as a result of such defective condition shall be primarily liable in damages for any loss or damage sustained as a result of such defective condition. The city shall not be held as assuming any such liability by reason of inspection or reinspection authorized herein or by reason of the approval or disapproval of any construction made or not made in accordance with standards or specifications of this chapter or other applicable provisions of this code. (Ord. 16982 § 3 (part), 2008; Ord. 13956 § 16, 1999; Ord. 13152 § 108, 1997; Ord. 12248 (part), 1995: prior code § 19-14.1)

(Ord. No. 17391, § 4, 8-24-2010, eff. 9-1-2010)

13.04.060 Maintenance of streets and drainage by streetcar and railroad companies.

Every streetcar or railroad company shall maintain in good condition all parts of streets occupied by its tracks, and the drainage facilities necessary to the tracks in the streets. (Prior code § 19-14)

13.04.070 Installation of sidewalk on property on which building permit issued.

A. The director of city development or his designee shall inspect each piece of property on which a building permit has been issued or for which a building permit has been applied for to determine whether the property owner shall be required to construct sidewalks. If there is no sidewalk on the part of the street or streets abutting the property, the director of city development or his designee shall proceed to order such sidewalk installed, unless the director or his designee authorizes that such sidewalk may be waived because of one or more of the conditions listed below. Such finding shall not deprive the city of its authority to order the installation of sidewalks at any subsequent time, as provided in this title.

1. In existing single-family residential neighborhoods where sidewalks are not present and have not historically been provided or comply;

2. On local streets within an approved subdivision where all the lots provide a minimum one-half acre lot area and the adjoining properties have no sidewalks;

3. On mountain residential and divided mountain residential streets within an approved mountain development subdivision;

4. On local streets within an approved planned unit development where pedestrian access is provided within the approved subdivision through an alternative sidewalk design not installed within the street right-of-way; provided, however, that an easement may be required by the city manager or designee to provide for the installation of traffic signage and signalization, utility services, neighborhood delivery and collection box units, or other similar facilities;

5. On local streets within an approved subdivision which meet all of the following criteria as determined by the director of city development or designee:

a. A characteristic of the neighborhood is that no sidewalks have been required to date,

b. The subdivision adjoins or lies within a neighborhood in which buildings or structures have been constructed on at least fifty percent of the lots within the neighborhood, and

c. The type of subdivision and intensity of land use is compatible with the character of the neighborhood;

6. On streets within neighborhoods that meet the criteria in Title 20 for infill development, where a street construction project, whether local, state or federal, has been awarded and the project includes construction of the sidewalks; and

7. In areas with severe topography or other natural constraints that will constrain proper implementation of this title. (Ord. 16982 § 3 (part), 2008; Ord. 13956 § 17, 1999; Ord. 13152 § 109, 1997: Ord. 12248 (part), 1995: Ord. 9292 § 1, 1988: prior code § 19-14.2)
(Ord. No. 17391, § 5, 8-24-2010, eff. 9-1-2010; Ord. No. 17803, § 3, 6-5-2012, eff. 6-11-2012; Ord. No. 17922, § 1, 1-2-2013)

Editor's note—Section 3 of Ord. No. 17922 states: "These requirements shall apply to both public and private streets.

13.04.080 Recording paving proceedings and ordinances.

A. All paving proceedings under Article 1105b of Vernon's Texas Civil Statutes shall be recorded and permanently kept in a separate book to be designated "Paving Proceedings." All other ordinances shall be recorded and permanently kept in a separate book to be designated "Ordinances."

B. The regular minute books shall show the action taken by the council on all paving proceedings and ordinances, identified by caption and number, if any; but not the text of such proceedings and ordinances.

C. The recording of paving proceedings and ordinances as herein provided shall have like effect as if the text thereof were recorded in the regular minute books. (Prior code § 19-11)

Chapter 13.06

ENGINEERING AND CONSTRUCTION MANAGEMENT DEPARTMENT

Sections:

13.06.010. Creation and purpose of the engineering and construction management department.

13.06.020 Staffing of the engineering and construction management department.

13.06.010. Creation and purpose of the engineering and construction management department.

A. There is hereby established the Engineering and Construction Management Department in the City of El Paso, which shall generally provide oversight for the capital and construction projects authorized by the city council.

B. The primary functions of the department shall be to:

1. Provide scoping, planning, and estimating support, right-of-way and other property acquisition, and procurement services for current and future capital improvement programs and authorized construction projects; provide fiscal oversight, design, program management, project management, construction management, inspection, and commissioning services and contract and reporting compliance for the city's capital projects;

2. When designated by the city manager, provide floodplain administration to the citizens of the City of El Paso as the official administrator of the National Flood Insurance Program; and

3. Generally perform duties and services relating to engineering and construction management services as assigned by the city manager and his designees, to include but not be limited to all duties and responsibilities assigned and set forth in the El Paso City Code for the department and the city engineer as may be designated by the city manager.

(Ord. No. 17386, § 2, 8-24-2010, eff. 9-1-2010; Ord. No. 17807, § 1, 6-5-2012, eff. 6-11-2012)

13.06.020. Staffing of the engineering and construction management department.

A. The department shall be staffed by a department director and such other appropriate positions as are authorized by city council.

B. The department director shall be responsible for the performance of duties as assigned by the ordinances of the city and as determined and directed by the city manager, including but not limited to the duties of the city engineer, provided however, that the city manager may reassign duties to other departments and staff, as he deems appropriate, as provided by the El Paso City Code.

(Ord. No. 17386, § 3, 8-24-2010, eff. 9-1-2010; Ord. No. 17807, § 2, 6-5-2012, eff. 6-11-2012)

Chapter 13.08

EXCAVATIONS*

Sections:

13.08.010 Definitions.

13.08.020 Permit required.

13.08.030 Permit—Application and requirements.

13.08.040 Fees, bonds and insurance.

13.08.050 One-year warranty and maintenance requirement.

13.08.060 Permit—Limitations.

13.08.070 Excavation and cut location limitations.

13.08.080 Protective measures.

13.08.090 Specifications.

13.08.100 Responsibility of permittee.

13.08.110 Monitoring wells.

13.08.120 Appeal.

13.08.130 Authority to issue citations.

13.08.140 Violation—Penalty.

13.08.010 Definitions.

A. "Design standards for construction" ("DSC") means the most recent edition of the regulations of the city engineer providing design standards for the construction of restoration of any cut or excavation in the city right-of-way.

B. "Normal city work hours" means city workdays from 8:00 a.m. to 3:00 p.m. Saturday, Sunday and official city holidays are not included in city workdays.

C. "Parkway" means the area of the city right-of-way from the back of the curb to the right-of way line.

D. "Permittee" means the governmental entity, person or business entity that has received a permit pursuant to this chapter.

E. "Property" means a parcel of land having a property or parcel identification number issued by the Central Appraisal District.

F. "Temporary traffic control plan" means a plan required pursuant to Chapter 18.30 describing temporary traffic control measures to be used for facilitating users through a work zone in a public right-of-way.

G. "Work" means any cut or excavation in the public right-of-way and/or any construction activities within the public right-of-way, including but not limited to public works projects by governmental entities, but shall not include El Paso Department of Transportation repair and maintenance. (Ord. No. 17487, § 1, 1-18-2011)

13.08.020 Permit required.

A. No person shall perform any work, make or cause to be made any cut or excavation in or under any street, alley, sidewalk, parkway or driveway within the city right of way without having first obtained a permit as required in this chapter. Permits are not required for the following activities in the Parkway: (1) utility service installations and repairs that require excavation depth of four feet or less than four feet and (2) utility pole installation or removal. Permittees who obtain a permit issued pursuant to this chapter that includes sidewalk cuts will not be required to obtain an additional separate sidewalk permit pursuant to the requirements of Chapter 13.04.

B. When an emergency occurs that requires an excavation, no permit shall be required prior to beginning work needed to respond to the emergency. All other work shall not proceed until a permit has been issued. The permit official shall be notified of the emergency as soon as possible. Limitations on hours of work in this Code shall not apply to work required in response to an emer-

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***Editor's note—**Ord. No. 17487, § 1, adopted January 18, 2011, repealed the former Ch. 13.08, §§ 13.08.010—13.08.180, and enacted a new Ch. 13.08 as set out herein. The former Ch. 13.08 pertained to similar subject matter and derived from prior code § 19-15—19-23, 19-25, 19-26; Ord. 8229 §§ 1—9, 1984; Ord. 9430 § 9, 1988; Ord. 10780 § 1, 1991; Ord. 10909 § 1, 1992; Ord. 11044 § 1, 1992; Ord. 11705 §§ 1, 2, 1993; Ord. 11846, 1994; Ord. 12757 § 1, 1996; Ord. 13062 § 18, 1997; Ord. 13135 § 1, 1997; Ord. 13152 §§ 110—114, 116—118, 1997; Ord. 13956 §§ 18, 19, 1999; Ord. 15188 § 1 (part), 2002; Ord. 15189 § 1 (part), 2002; Ord. 15662, § 1, 2004; Ord. 15663 § 1, 2004; Ord. 16819 §§ 1—3, 2008; Ord. 16982 § 4, 2008; Ord. No. 17391, §§ 6—8, 8-24-2010.

gency. Emergencies exist only when there is a present danger to life, health or property, including but not limited to utility service outage. A permit shall be submitted as soon as possible but no later than noon of the city business day following the day the emergency occurred.
(Ord. No. 17487, § 1, 1-18-2011)

13.08.030 Permit—Application and requirements.

A. Application. The application for the permit required by this chapter shall be made in writing on a form supplied by the permit official and shall be signed by the applicant or an individual who is authorized in writing to act as the agent of the applicant. The application and accompanying documentation shall be submitted to the permit official and shall include the following:

1. The name, address, telephone numbers and e-mail address of the applicant and the person or people in charge of the work related to the permit, and

2. Location where the work will be performed including the street address of the property or adjacent property and the parcel identification number of the Central Appraisal District given to such property, and

3. The duration and schedule of the work, and

4. The description of the work, including but not limited to drawings showing the dimensions and characteristics of the proposed cut/excavation and restoration, a plan view of the work area, cross-sections of the backfill requirements and such other design information as may be required by the permit official, and

5. A traffic control plan, and

6. Certificates of insurance and permit bond, and

7. The one call system verification number (DIG TESS) for the work related to the permit, and

8. The name of the barricade company responsible for traffic set up, if applicable.

B. An applicant requesting a permit under this chapter shall be responsible for contacting a "one call" notification system servicing the area and will be required to furnish a verification number confirming that such a "one call" has been made as part of the application for permit. A permit issued under this chapter shall be denied for the failure of the applicant to contact a "one call" notification system servicing the area, and to provide a verification number confirming that such a "one call" notification system has been contacted by the applicant. This requirement, however, shall create no duty, express or implied, on the part of the city to verify that the applicant notified the one call system and received a verification number.

C. Public utility companies having permanent installations in or under streets, alleys or any other city right-of-way or city owned property by franchise or by special privilege license from the city shall obtain permits as required in this chapter.

D. Term. Permits shall be for a fixed term not to exceed thirty consecutive calendar days. The permit shall clearly identify the expiration date of the permit. If a permittee does not complete the work by the permit expiration date, the permittee must apply for and may be granted a permit extension for an additional thirty consecutive calendar days. An application for the extension of the term of the permit must be submitted to the permit official prior to the expiration date.

E. Traffic control permits are required pursuant to Chapter 18.30 and are in addition to the permit required in this chapter. Applicants for a permit under this chapter must also apply for a traffic control permit from the traffic engineer when such permit is required pursuant to Chapter 18.30. Failure to obtain a traffic control permit for the work that is subject of a permit issued under this chapter shall result in the revocation of a permit issued pursuant to this chapter.

F. Permittees shall request appointments for inspections by city inspectors for backfill, two sack, asphalt or concrete placement by calling the

permit official. Requests shall be made on or before the city work day prior to the day the permittee wishes the inspection to take place. Appointments shall be made subject to the availability of the city inspectors. Inspections not performed during normal city work hours shall be subject to the after hours inspection fee in Section 13.08.040. (Ord. No. 17487, § 1, 1-18-2011)

13.08.040 Fees, bonds and insurance.

A. Fees: The established fees shall be as follows:

1. Permit fee: The permit fee shall be charged for each permit issued. The permit fee shall be paid when the permit is issued, and shall not be refunded. Permit fees shall not include the costs related to occupancy that prevents the use of parking meters and permittees shall be subject to parking meter fees pursuant to Title 18. Permittees obtaining a permit under this chapter shall not be required to pay the sidewalk, street or alley space rental or storage fees that are required in Title 18. No permit fee will be charged to public utility companies operating under a franchise from the city or state or to city agencies, provided that city agencies are required to pay for inspection costs incurred by the permit official. Contractors applying for a permit to perform work on behalf of a public utility that is operating under a franchise with the city or the state shall not have to pay the permit fee when the public utility has provided verification to the city that such contractor is working on behalf of the public utility for the work authorized under the permit.

2. Permit extension fee: The permit extension fee shall be one-third of the original permit fee and shall be charged for each thirty-day extension of the permit. Permit extension fees shall be paid prior to issuance of each extension. No permit extension fee will be charged to public utility companies operating under a franchise from the city or state or to city agencies, provided that city agencies are required to pay for inspection costs incurred by the permit official.

3. Initial inspection fee: The initial inspection fee shall be included in the permit fee and includes the city's cost of up to two hours of inspection of the work during normal city work hours by city employees.

4. Additional inspection fee. Permittees shall pay an additional inspection fee that shall be charged for each additional hour or part of an hour of inspection by the City that is in addition to the first two hours of inspection.

5. After hours inspection fee. An inspection fee for inspection performed by the city during hours other than normal city work hours shall be charged for each hour or portion of an hour inspection is provided.

B. Bond requirements. No permit shall be issued under this chapter to any person, firm or corporation applying for a permit until such applicant has filed with the permit official a bond in the minimum amount of ten thousand dollars, signed by a surety company authorized to do business in Texas. The permit official may require a bond in an amount in excess of ten thousand dollars in the event the permit application is for work in excess of ten thousand dollars. The city shall be named as the obligee under such bond. The bond shall provide that the principal and its agents, employees, and subcontractors shall comply with all provisions of this chapter, that the principal shall pay all damages which are sustained by the city and which are caused by failure of the principal, its agents, employees or subcontractors to comply with the provisions of this chapter, and that the principal shall indemnify the city against claims arising out of such failure to comply, including but not limited to the one-warrant period required in this chapter. Bonds shall be issued for a duration sufficient to cover the one-year warranty period. The surety shall be acceptable to the city as to solvency and such surety shall be listed on the current Department of the Treasury's Listing of Approved Sureties, Department Circular 570, United States Department of the Treasury or its successor publication, ("Circular 570"). If the City becomes dissatisfied that the

surety is solvent or the surety is no longer included in Circular 570, the permit official may require a bond from a surety listed in Circular 570. Permit applicants that have provided a bond to the city in the amount required by the permit official for a permit pursuant to the requirements of a chapter of the City Code other than this chapter that meets all of the requirements established in this Chapter shall not be required to obtain an additional bond but are required to provide a copy of such bond, provided that such bond specifically includes coverage for the permit or permits issued pursuant to this chapter. Permittees who have multiple permits issued pursuant to this chapter are required to provide only one current valid bond for all such permits but may be required to provide a copy of the current bond with each application for a permit. Contractors under contract with a government agency shall provide the bond required in this section. No bond is required when all of the work performed pursuant to a permit issued under this chapter to a government agency is performed entirely by the employees of that government agency. Public utility companies operating under a state or city franchise shall not be required to provide the bond required in this section when the work authorized in a permit will be performed solely by employees of such public utility. Any person or entity that is not an employee of the public utility performing work under a permit on behalf of a public utility shall provide the bond required under this section.

C. Insurance requirements. No permit applicant shall be issued a permit until the applicant presents evidence satisfactory to the permit official that the applicant meets the following minimum insurance requirements:

1. The applicant shall procure and shall maintain during the term of the permit such commercial general liability, property damage liability and vehicle liability insurance, naming the permittee and any subcontractor performing work associated with the permit as insured, co-insured or additional insured for claims for damages for personal injury, including accidental death, as well as from claims for property damage that may arise from work associated with the permit.

2. Minimum limits of liability and coverage shall be two hundred fifty thousand dollars for bodily injury liability, including death, for each person and five hundred thousand dollars in the aggregate and one hundred thousand dollars for property damage for each occurrence and one hundred thousand dollars in the aggregate.

3. Such insurance shall be written by an accredited insurance company under the supervision of the Board of Insurance Commissioners of the State of Texas. Evidence of compliance with these insurance requirements shall be considered as having been met when copy of the insurance policy or a certificate of insurance has been filed with and approved by the permit official. Such policy shall include an endorsement that the city is named as an additional insured to the full amount of the policy limits and that permit official shall be notified at least thirty days in advance in the event the policy or policies are canceled and ten days in advance for non-payment of policy premiums. The required endorsement shall be provided to the permit official. The permittee shall maintain said insurance with a solvent insurance company authorized to do business in Texas. The policy shall provide that the insurer will defend against all claims and lawsuits which arise and will pay any final judgment of a court of competent jurisdiction against the city, its officers, agents, servants or employees and permittee, his officers, agents, servants or employees. Failure by permittee to keep the policy in full force and effect throughout the term of the permit shall be grounds for cancellation of the permit by the permit official. The permit official shall provide notice of cancellation of the permit to the permittee, at which time the permittee shall cease the work allowed under the permit.

4. Permit applicants who have provided certificates of insurance to the city pursuant to the requirements of a chapter of the City Code other than this chapter that meet all of the requirements

established in this chapter shall not be required to obtain an additional insurance but are required to provide such certificates of insurance showing present coverage as required in this chapter.

Permits shall be required in connection with all city (including but not limited to El Paso Public Service Board/El Paso Water Utilities), county, state or federal public works projects provided that no permit fee shall be required for such projects. When the work permitted under this chapter is performed by the employees of a governmental agency, the insurance requirements of this section may be met by providing certification that government agency obtaining the permit is self-insured. Work permitted under this chapter performed by those contracting with a governmental agency shall provide the insurance required herein.

5. Self-insurance. A permittee may satisfy the vehicle insurance requirements of this section by providing the city with a current "Self-insurance Certificate" issued by the Texas Department of Public Safety or its successor agency. A permittee may satisfy the worker's compensation insurance requirements of this section by providing the city with a current "Certificate of Authority to Self-insure" issued by the Texas Department of Insurance, Division of Worker's Compensation or its successor agency.

(Ord. No. 17487, § 1, 1-18-2011; Ord. No. 17772, § 1, 4-17-2012)

13.08.050 One-year warranty and maintenance requirement.

Any person issued a permit shall agree and warrant to maintain the excavated area for a period of one year after the completion of the restoration of the right of way, as approved by the city. Maintenance of the excavated area shall include the repair of any type of failure, including, but not limited to, the area permittee was required to repave. Repairs during the warranty period shall meet the standards of the DSC. The city may conduct inspections of the restored area throughout the one-year warranty period and require maintenance and correction of the work by the permittee. Failure of the permittee to correct the work shall constitute a violation of this chapter.

(Ord. No. 17487, § 1, 1-18-2011)

13.08.060 Permit—Limitations.

A. Each permit shall specify the location of each cut or excavation allowed in the permit and the dates during which the city right-of-way or any portion thereof may be cut or excavated as to each such location. The time for each cut or excavation allowed in the permit shall not exceed thirty consecutive calendar days, provided that if the work for a cut or excavation is not completed within the time allowed in the permit, the permittee shall obtain a permit extension. A work schedule for each such location not completed as required in the original permit shall be submitted with the application for the permit extension. Each permit extension shall not be issued for more than thirty consecutive calendar days.

B. Master permits may be issued for multiple cuts or excavations in the city right-of-way provided that they pertain to the same project scope of work, adequate documentation is provided to the permit official and the requested master permit does not create conflicts with street closures and property access.

C. Permits shall not be assignable. No person shall use the name of another in obtaining a permit, and no person shall allow his name to be used by another in obtaining a permit, except in the case of an authorized agent acting for his principal.

(Ord. No. 17487, § 1, 1-18-2011)

13.08.070 Excavation and cut location limitations.

The permit official may restrict the area in which a cut or excavation may occur. In granting permission for a cut or excavation, the permit official shall consider the need for the proposed cut or excavation, amount of traffic at the location in question and safety factors, including but not limited to the hazards likely to be created by such

cut or excavation. The permit official shall have the authority to require a location of the cut or excavation other than the location requested by the applicant when one or more alternative locations are available to the applicant. The permit official's determination of required location shall be based on the following information that shall be provided by the traffic engineer to the permit official: the amount and pattern of traffic, nature and condition of the right of way and safety factors, including but not limited to reduced risk to the traveling public.
(Ord. No. 17487, § 1, 1-18-2011)

13.08.080 Protective measures.

A. While the cut or any part thereof is open, and while any part of the street, sidewalk or public place is obstructed by rubbish or material, the permittee shall erect and maintain traffic control devices as required by the traffic control permit and shall maintain safe passage for pedestrian and vehicular traffic.

B. If substantially the full width of any street, alley, sidewalk or public place is excavated, the permittee shall maintain a driveway or walkway across the excavation until it is refilled. The driveway or walkway, as applicable, shall be specified in the plans submitted with the application for the permit and such driveway and/or walkway shall meet specifications approved by the permit official.

C. If the permittee fails to take any protective measures herein required, the permit official may, in his discretion, authorize the work to be done by city forces or by contract. Permittee shall pay the city for its costs of protective measures within ten city working days of receiving an itemized statement for such costs.

D. Steel plates. Requirements for providing and maintaining steel plates are contained in the DSC.
(Ord. No. 17487, § 1, 1-18-2011)

13.08.090 Specifications.

A. All work, including but not limited to cutting of paving, excavation, backfill, bedding, base course and placement and compaction of pavement shall be done pursuant to the standards and specifications in the city's Design Standards for Construction, Addendum 1, or successor standards for construction in effect at the time of the issuance of the permit or as specified in the permit by the permit official. The DSC governs the construction and restoration of the streets, sidewalks, parkways, driveways, and related infrastructure within the city's right-of-way and does not apply to the construction related to public utility infrastructure within the city's right-of-way.

B. Minimum patching requirements. The minimum area that shall be patched pursuant to the standards in the DSC and any provision specified in the permit, includes:

FOR EXCAVATIONS OR CUTS ACROSS THE STREET RIGHT-OF-WAY: (1) patching the excavated or cut area; and (2) patching two feet from each side of the excavation or cut area, and (3) patching no more than eight feet in each direction from the areas patched pursuant to (1) and (2) of this paragraph, provided that patching need not extend across a median when the excavation did not extend across the median and providing that if the area patched under (1), (2) and (3) of this paragraph extends into an area that was patched prior to the excavation, such patching shall be extended to include all of the area of the prior patch, as shown in the illustrations in the DSC.

FOR EXCAVATIONS OR CUTS ALONG THE LENGTH OF THE STREET RIGHT-OF-WAY:

a. In traffic lanes:

(1) Restoration width.

(a) Where the excavated area or cut is not more than fifty percent of the width of the right-of-way the excavated area shall be patched (restored and resurfaced) and the patching shall extend to the next existing original paving joint, provided that patching shall always be no less than to the center of the wheel path in all lanes in which the excavation occurs.

(b) Where the excavated area or cut is more than fifty percent of the width of the right-of-way the excavated area shall be patched (restored and resurfaced) and the patching shall extend from curb to curb.

(2) All patching (restoration and resurfacing) shall include the application of an asphalt based sealer consisting of a blend of asphalt, selected mineral fillers and/or acrylics, designed specially to increase the life expectancy of asphalt pavements. The sealer shall be applied in accordance with the specifications in the Design Standards for Construction (Pavement Cut Trench Repair, Addendum 1).

b. In parking and other lanes such as bike lanes. Patching (restored and resurfaced) two feet from each side of the length of the excavation area or cut and patching to the curb or original paving joint, whichever is the greater distance, provided that patching shall always be not less than to the center of such lane, as shown in the illustrations in the DSC.

FOR EXCAVATIONS OR CUTS OF OTHER AREAS: The requirements for patching (restoration and resurfacing) other areas within the city parkway, including but not limited to sidewalk and curb repair, are set forth in the DSC. (Ord. No. 17487, § 1, 1-18-2011; Ord. No. 17863, § 1, 8-28-2012)

13.08.100 Responsibility of permittee.

A. The permittee shall be responsible for, and shall hold the city harmless against, all damages to persons or property resulting from the making or repair of the cut or excavation, whether done by himself or by the city; and the taking out of the permit shall be deemed a contractual acceptance of this obligation by the permittee in a condition of the issuance of the permit. The person making the cut or excavation shall continue to protect it and be responsible for its condition until the work allowed in the permit is completed as required in the permit.

B. If the permittee fails to complete any work required of him hereunder as promptly as reasonably possible consistently with good construction practice, or if the permittee fails to take any protective measure required of him by this chapter, the work may, in the discretion of the permit official, be done by city forces or by contract whether requested or not; and the proper charge shall be made against the permittee in accordance with this section.
(Ord. No. 17487, § 1, 1-18-2011)

13.08.110 Monitoring wells.

A. Permit required. Where drilling of a monitoring well is proposed on public right-of-way or city-owned property, a monitoring well permit shall be required. A permit application may cover one or more monitoring wells for a single property. If additional wells are required on the same property subsequent to a permit having been issued, a new monitoring well permit shall be required for the additional wells. Separate monitoring well permits shall be required for wells on property not included in an existing monitoring well permit. A monitoring well permit shall expire at the end of one year from of the date of issuance of the permit, at which time the permit will become void and a new permit, obtained through the filling of a new application with the permit official, shall be required.

B. Monitoring well permit fees. A permit application shall be accompanied with the established permit fee. The permit fee shall not be refundable. The permit fee shall include the cost of inspecting the capping of the monitoring wells that are allowed under the permit. If any person commences construction work on public right-of-way or city-owned property prior to the issuance of a permit, such person shall submit an application for a permit and pay the established permit fee for an application submitted after work begins, provided, however, that such additional fee shall not be required in cases of an emergency, as emergency is described in Section 13.08.015 B. For purposes of this subsection, the Texas Commission on Environmental Quality or the director of the department of environmental services may

declare an emergency; provided, that the city is properly notified by written notice to the permit official. Permit fees shall not include the costs related to occupancy that prevents the use of parking meters and permittees shall be subject to parking meter fees pursuant to Title 18. Permittees shall not be required to pay sidewalk, street or alley space rental under Title 18 or for sidewalk, street or alley storage fees pursuant to Title 18.

C. Permit contents. The monitoring well permit application shall be on a form approved by the permit official that shall be submitted to the permit official and include the information required in Section 13.08.030 A.1. through 8. and the following information:

1. A site map of the proposed monitoring well(s);

2. A narrative describing the need for the well(s), the extent of interruption of traffic, and the proposed drilling schedule of the monitoring well(s);

3. When issued by the Texas Commission on Environmental Quality (TCEQ), a copy of the demand letter requesting corrective action on delineation of ground contamination, which shall contain the LPST identification number if available;

4. The applicant shall be required to provide copies of the permit application and accompanying information to the engineering services manager of the El Paso Water Utilities and the Permit Official.

D. Other requirements. The requirements of Section 13.08.20 B. shall apply to all monitoring well permits. The permit shall require that the Permittee shall meet all TCEQ requirements for capping the monitoring well.

E. Permit issuance. Upon verification by the applicant that the previously described information has been provided to all indicated departments, the application shall be accepted for processing. The permit official shall, within five city working days after acceptance of the application, issue or deny the permit based on the information provided. It shall be the responsibility of the applicant to obtain clearance from all affected utility agencies and the engineering services manager of the El Paso Water Utilities and submit such clearances with the permit application. The applicant shall meet the insurance and the bond requirements of Section 13.08.030.

F. Notification to director of the department of environmental services. Whether the monitoring well is on public right-of-way, city-owned property or private property, copies of the well driller's log submitted to the Texas Commission on Environmental Quality shall be provided to the director of the city's department of environmental services. If at any time during the construction, operation or monitoring of a well, suspected hazardous or toxic substance is encountered, the director of the department of environmental services shall be immediately notified by the permittee.
(Ord. No. 17487, § 1, 1-18-2011)

13.08.120 Appeal.

Any applicant or permittee aggrieved by the decision of the permit official concerning the issuance, denial, revocation or suspension of a permit may appeal such decision to the appeals officer in accordance with the requirements and procedures of Chapter 2.30.
(Ord. No. 17487, § 1, 1-18-2011; Ord. No. 019759, § 2, 7-22-2025)

13.08.130 Authority to issue citations.

The permit official is authorized to enforce the provisions of this chapter and shall have the power to issue misdemeanor citations to any persons violating the provisions of this chapter.
(Ord. No. 17487, § 1, 1-18-2011)

13.08.140 Violation—Penalty.

Any person who shall violate any provision of this chapter shall, upon conviction, be guilty of a misdemeanor and punished by a fine not exceeding five hundred dollars. Each day the violation occurs shall constitute a separate offense.
(Ord. No. 17487, § 1, 1-18-2011)

Chapter 13.12

DRIVEWAYS

Sections:

13.12.010 Definitions.
13.12.020 Permit—Required.
13.12.030 Permit—Application—Generally.
13.12.040 Permit—Application—Contents.
13.12.050 Permit—Fee.
13.12.060 Indemnification.
13.12.070 Permit—Relocation or alteration.
13.12.080 Materials.
13.12.090 Location.
13.12.095 Slopes.
13.12.100 Angle of intersection of roadway.
13.12.110 Flaring at intersection of roadway.
13.12.120 Width.
13.12.130 Municipal facilities.
13.12.140 Intermediate island.
13.12.150 Service stations for motor vehicles.
13.12.160 Parking areas.
13.12.170 Drainage structures.
13.12.180 Access by handicapped.
13.12.190 Driveway abandonment.
13.12.200 Curbing required.
13.12.210 Variances.
13.12.220 Maintenance.
13.12.230 Clarification regulations.
13.12.240 Inspections.
13.12.250 Appeals.
13.12.260 Violation—Penalty.

13.12.010 Definitions.

A. Words and Phrases Generally. Whenever any word or phrase used herein is not defined herein, but is defined in any other ordinance or state law, such definition shall be deemed to apply to such word or phrase used herein.

B. Abandoned or Abandoned Driveway. For the purpose of this chapter a driveway shall be considered to be abandoned when either one or both of the following conditions exist:

1. When the adjacent property has been vacant and unused for any apparent purpose for a period of not less than six months; or

2. When buildings or other structures have been situated on the adjacent property in such manner as to prevent a vehicle from passing completely on to such property.

C. "Commercial driveway" means any passageway designed or intended for vehicular movements between the roadway and any point outside the street right-of-way, when such passageway leads to any public or private area outside the street which is designed or intended for the parking of any commercial vehicle, or for the parking of more than three passenger vehicles.

D. "Curb return" means that part of the curbing at an intersection or at a driveway which is rounded to form the connection between intersecting curblines.

E. "Freeway or expressway" means any fully controlled access highway which is constructed in such manner as to prohibit any traffic intersections, with cross streets being built either under or over or terminating before entering such highway.

F. "Frontage" means that portion of adjacent property contiguous to a street property line. For the purpose of this chapter, frontage shall be measured as the total distance over which the street right-of-way line and the lot or property lines are congruent, and shall include all lots or properties under the legal control of the applicant.

G. "Frontage road" means any roadway parallel and adjacent to any freeway, the principal purpose of which is to provide for the transfer of vehicle traffic between the freeway and other streets.

H. "Limited access or controlled access highway" means every street or roadway in respect to which owners or occupants of abutting lands and

other persons have no legal right of access to or from the same, except at such points only and in such manner as may be determined by the city council.

I. For the purposes of this chapter, the term "ramp" means any roadway providing a connection between a freeway and a frontage road, irrespective of any difference in grade or elevation between such freeway and frontage road.

J. "Residential driveway" means any passageway designed or intended for vehicular movements between the roadway and any point outside the street right-of-way, when such passageway leads to any public or private area designed or intended for the parking of not more than three passenger vehicles; provided, however, that driveways to gasoline service stations shall be considered as commercial driveways.

K. "Safety zone" means that portion of the right-of-way between any two driveways. (Prior code § 19-30)

13.12.020 Permit—Required.

A. Except as otherwise provided in this code, no person shall construct a driveway within the city limits without first obtaining a driveway construction permit from the permit official as hereinafter provided.

B. No such permit shall be required for the construction of any driveways installed as a part of the paving or widening of any street in accordance with plans approved by the traffic engineer, and no permit shall be required for driveways when such driveways are included as a part of a building or construction plan.

C. The permit official will issue driveway permits and will enforce the requirements of this chapter for all properties.

D. Permits issued pursuant to this chapter shall be valid for six months from the date of issuance. (Ord. 16982 § 5 (part), 2008; Ord. 13956 §§ 20, 21, 1999; Ord. 13062 § 19, 1997; Ord. 12247 (part), 1995: Ord. 11707 § 1, 1993; prior code § 19-31)
(Ord. No. 17391, § 9, 8-24-2010, eff. 9-1-2010)

13.12.030 Permit—Application—Generally.

Applications for driveway permits shall be made by the owner or lessee of the abutting property, or by a contractor representing the owner or lessee. Application by a contractor shall state the name of the owner or lessee whom he represents. (Prior code § 19-33)

13.12.040 Permit—Application—Contents.

A. Application for such permit shall be made to the permit official as provided in Section 13.12.020(C) on forms provided by the city. Each such application shall show the address of the property where the driveway is to be located, the width of the driveway requested, the location of the driveway requested with respect to street intersections and private property lines, the location of any other existing driveways serving the same property, if any, and such other information as may be requested by the city. Additionally, an applicant requesting a driveway permit shall be responsible for contacting a "one call" notification system servicing the area, and will be required to furnish a verification number confirming that such a "one call" has been made a part of the application for permit. This requirement, however shall create no duty, express or implied, on the part of the city to verify that such a "one call" has been made by the applicant.

B. No such permit shall be issued by the permit official until the location and design of the proposed construction has been approved by the traffic engineer, nor until curb and driveway grades and elevations have been approved by the permit official. (Ord. 16982 § 5 (part), 2008; Ord. 13956 §§ 22, 23, 1999; Ord. 13062 § 20, 1997; Ord. 12247 (part), 1995: Ord. 11707 § 2, 1993; prior code § 19-32)
(Ord. No. 17391, § 9, 8-24-2010, eff. 9-1-2010)

13.12.050 Permit—Fee.

A. The standard fee for a driveway permit shall be sixty dollars per curb cut.

B. The total number of curb cuts on public property of all driveways proposed to serve any one property shall determine the required fee.

C. Reinspection Fee. A fee of fifty dollars shall be required to be paid for each reinspection due to work failing to comply with this chapter or other applicable ordinances of the city, or the work was not ready for inspection when requested. A reinspection fee shall not be required to be paid when a reinspection may not be completed due to weather or other conditions not created by the applicant. (Ord. 15751 § 1, 2004: Ord. 12247 (part), 1995: Ord. 12111 § 2, 1994; Ord. 10800 § 1, 1991: prior code § 19-34)

13.12.060 Indemnification.

The grantee of any driveway permit shall hold harmless the city and its agents and employees against any action for personal injury or property damage sustained by reason of the exercise of his permit. (Prior code § 19-53)

13.12.070 Permit—Relocation or alteration.

No driveway shall hereafter be relocated or structurally altered, nor any dimensions altered without a duly executed permit as set forth herein. (Prior code § 19-35)

13.12.080 Materials.

A. The grantee of any driveway permit shall furnish all materials necessary for the construction of the driveways authorized in the permit.

B. All materials shall meet city specifications and shall be subject to approval by the permit official. (Ord. 16982 § 6 (part), 2008; Ord. 13956 § 24, 1999; Ord. 13152 § 119, 1997; Ord. 12247 (part), 1995: prior code § 19-39)
(Ord. No. 17391, § 9, 8-24-2010, eff. 9-1-2010)

13.12.090 Location.

A. When measured at the curbline of the roadway, and perpendicular to the centerline thereof, no commercial driveway shall be located nearer than two and one-half feet to any property line; provided, that upon approval of the traffic engineer, driveways may be so situated as to serve more than one property if the total width of such driveway does not exceed thirty-five feet when measured as provided in Section 13.12.120.

B. When measured at the curbline of the roadway and perpendicular to the centerline thereof, no driveway shall be located nearer than ten feet to any property line adjacent to or parallel to any intersecting street; provided, that when street property lines are described by curves, no driveway shall be located nearer than five feet to the end of such curved property line.

C. When the street abutting the property to be served by any driveway is a frontage road to any freeway, no commercial driveway shall be located so that the centerline thereof is nearer than seventy-five feet to the intersection of the centerline of any ramp with the curbline of said frontage road. (Prior code § 19-40)

13.12.095 Slopes.

All driveways shall extend from any public or private street, alley pavement or curbline to any garage, carport or parking space. A minimum parking space length of twenty feet measured from the property line to a garage, carport or parking space shall be provided. The slope of a driveway from the face of the curb at the gutter to any garage, carport or parking space shall be no greater than ten percent for the first twelve feet, and not greater than fourteen percent thereafter. The vertical transition of the driveway shall be designed to prevent contact of any vehicle undercarriage or bumper with the surface. Provided, however, that any provision within this section may be modified upon approval of the permit official. (Ord. 16982 § 6 (part), 2008; Ord. 13956 § 25, 1999: Ord. 13152 § 120, 1997: Ord. 12247 (part), 1995: Ord. 10800 § 2, 1991)
(Ord. No. 17391, § 9, 8-24-2010, eff. 9-1-2010)

13.12.100 Angle of intersection of roadway.

The interior angle formed by the intersection of the centerline of the roadway and the centerline of the driveway shall be not more than ninety degrees and not less than forty-five degrees. (Prior code § 19-41)

13.12.110 Flaring at intersection of roadway.

Where the driveway and the roadway pavement meet, flaring of the driveway shall be permit-

ted to allow safe easy turning of the vehicle either into or out of the property. The radius of the flare shall be as long as practical to provide free and safe turning movements, but shall in no case be less than two and one-half feet. For the purpose of this chapter, flares may be provided either by sloping the street curb, or by providing curb returns. (Prior code § 19-43)

13.12.120 Width.

A. The width of a commercial driveway where it crosses the property line shall be not less than fifteen feet nor more than thirty-five feet measured at right angles to the centerline of the driveway; provided, however, the minimum width of a two-way driveway shall be twenty-five feet.

B. The width of a residential driveway where it crosses the property line shall be not less than twelve feet nor more than twenty-four feet when measured at right angles to the centerline of the driveway; provided, that the driveway width may be decreased to ten feet at the property line. The width of a residential driveway may be increased to a maximum of thirty feet when it is proposed to serve a three-car garage or when the overwidth is needed to store a recreation vehicle, trailer, boat, etc. off the public street and on private property; provided, that such storage of a recreation vehicle, trailer, boat, etc., will not constitute a visual obstruction to the driving public. (Ord. 8746 § 1, 1986: prior code § 19-42)

13.12.130 Municipal facilities.

No driveway shall be permitted to encompass or encroach upon any municipal facility. The relocation of the municipal facilities may be authorized, however, if the construction of a driveway as authorized herein shall encroach thereon, and such relocation shall be completed by and at the expense of the owner or lessee of the adjacent property. Any work done in such relocation shall be done in accordance with the specifications of the city department or public utility having control of the facility to be relocated. (Prior code § 19-44)

13.12.140 Intermediate island.

Between any two driveways serving the same property there shall be an intermediate island within the right-of-way. Such islands shall measure not less than six feet along the property line, and not less than fifteen feet along the curbline or edge of pavement of the street. (Prior code § 19-45)

13.12.150 Service stations for motor vehicles.

No service pump island, vendor stand, tank or water hydrant, or any other device or structure designed or intended to be used to service motor vehicles shall be erected within twelve feet of the street right-of-way; provided, that in instances where the lot size, shape or other physical characteristic makes this requirement impractical, the traffic engineer may reduce this requirement, but in no case shall this requirement be reduced to less than ten feet. Any such authorization shall be obtained from the traffic engineer in writing before any permit is issued. (Prior code § 19-46)

13.12.160 Parking areas.

Where the area immediately behind and adjacent to the street right-of-way is to be used as a vehicle parking area, curbs or other barriers shall be installed as may be required by the traffic engineer to prohibit such parked vehicles from extending into the right-of-way. Curbs or other barriers so required not less than six inches high, and shall be located not less than three feet from the right-of-way line on the adjacent property, except that walls or fences over twenty-four inches high may be situated on the property line. (Prior code § 19-47)

13.12.170 Drainage structures.

Drainage in gutters or side ditches shall not be altered or impeded. When drainage structures are required, the size of opening and other design features shall be approved by the permit official before any permit is issued. (Ord. 16982 § 6 (part), 2008; Ord. 13956 § 26, 1999: Ord. 13152 § 121, 1997: prior code § 19-48)
(Ord. No. 17391, § 9, 8-24-2010, eff. 9-1-2010)

13.12.180 Access by handicapped.

Driveways shall be designed and constructed in such a manner that the safe and convenient movement across the driveways by physically handicapped persons, including those in wheelchairs, shall not be impeded. (Prior code § 19-48.1)

13.12.190 Driveway abandonment.

A. When a driveway has been abandoned within the meaning of Section 13.12.010, the traffic engineer may order the replacement of curbing and/or sidewalk so as to effectively close such driveways.

B. When any such driveway is to be closed for the reasons set forth in subsection A of this section, the traffic engineer shall notify the property owner in writing of the work to be done. Upon notification thereof, the property owner shall proceed to perform such work at his own cost.

C. If within thirty days from such notification work has not been started on the installation of the curb and/or sidewalk as set forth in the notification, such work may be done by the city and all costs thereof assessed to the property. (Prior code § 19-49)

13.12.200 Curbing required.

A. No building permit shall hereafter be issued for the construction of any building designed or intended to be used for commercial purposes unless the construction plans for such structure indicate the installation of curbing where such is not already in place, and of driveways, if any are required, in accordance with the regulations set forth herein.

B. In those cases where the grade and/or location of the permanent street curb cannot be established because of existing conditions, the curbs required to be shown on the plans need not be installed until such time as such curb is constructed by or at the instance of the city; provided, that construction of temporary curbs may be authorized pending establishment of grades and locations of permanent curbs.

C. Where required, sidewalks shall extend to the street curbline of the intersecting street. Sidewalks may be required on both the side and front streets when the need thereof exists in the opinion of the city council. (Prior code § 19-50)

13.12.210 Variances.

Where special conditions exist, or where practical difficulties in the development and adequate use of land would result from the literal enforcement of the terms of this chapter, the traffic engineer is hereby authorized to vary the requirements herein set forth, provided that any such variances granted shall be in harmony with the general intent of this chapter, and consistent with the public interest, safety and general welfare. Any substantial variances shall be in writing and shall be specifically set forth in the permit issued. (Prior code § 19-51)

13.12.220 Maintenance.

The maintenance of any driveway shall be the responsibility of the adjacent property owner. (Prior code § 19-36)

13.12.230 Clarification regulations.

For more ready understanding of the requirements set forth in this chapter there is attached hereto, and by this reference made a part hereof, a drawing entitled "DRIVEWAY REGULATIONS," copies of which shall be made available to any interested party by the traffic engineer. (Prior code § 19-54)

13.12.240 Inspections.

The city reserves the right to inspect driveways at the time of construction and to require such changes as may be necessary to make the construction conform to city requirements. At any time after the construction of any driveway, the city reserves the right to inspect such driveway and require such repairs or maintenance as may be necessary to protect the public. The cost of any such repair or maintenance shall be borne by the adjacent property owner. (Prior code § 19-37)

13.12.250 Appeals.

In the event that any application is rejected under the provisions of this chapter, the applicant therefor may appeal such decision to the city council. All such appeals shall be made in writing, and shall be submitted to the city clerk within ten days of notification that his original application has been denied. (Prior code § 19-52)

13.12.260 Violation—Penalty.

Any person who shall violate any provision of this chapter shall be deemed guilty of a misdemeanor and punished by a fine not exceeding five hundred dollars; and if such violation shall be continuing, each day's violation shall constitute a separate offense. (Ord. 9430 § 10, 1988: prior code § 19-55)

Chapter 13.16

INSURANCE REQUIREMENTS FOR WORK WITHIN RIGHT-OF-WAY OF PUBLIC STREETS AND ALLEYS

Sections:

13.16.010 Required.

13.16.020 Exceptions.

13.16.030 Violation—Penalty.

13.16.010 Required.

A. No permit required by this title shall be issued by the city for any work within the right-of-way of any public street or alley, including but not limited to street and alley cuts and excavations, or the installation, construction, alteration, repair or removal of paving, sidewalks, curbs, gutters or driveways, unless the permittee has filed with the city clerk of the city at the office of the city clerk, 2 Civic Center Plaza, Second Floor, El Paso, Texas, a certificate of liability insurance accompanied by a copy of the policy of insurance as hereinafter set forth. If such policy shall not be kept in full force and effect, the permit shall thereupon automatically become void.

B. Such policy shall be issued by an insurance company duly authorized to do business in the state of Texas and shall be subject to approval of the city after review by the city attorney as to form and the city engineer as to sufficiency. Such policy shall provide in substance that the insurer will defend against all claims and lawsuits which arise and to pay any final judgment of a court of competent jurisdiction against the city, the permittee, or the agents, servants, officers or employees of either, for damages or injuries resulting from the performance of work by the permittee, his agents, servants or employees while performing the work on the right-of-way of any public street or alley in the city. The maximum amount recoverable under such policy shall be not less than two hundred fifty thousand dollars for death of or injury to any person in any one accident, five hundred thousand dollars for death of or injury to two or more persons in any one accident, and one hundred thousand dollars for property damage. The policy of insurance shall name the permittee and the city as insureds to the full amount of the policy limits. Such policy shall inure to the benefit of any person in whose favor such judgment may be rendered, but may contain a provision that suit against the insurer may not be brought until the permittee has failed to pay the final judgment of a court of competent jurisdiction against him.

C. The policy shall contain a provision that it may not be canceled, revoked or annulled by the insurer without giving ten days' prior written notice thereof to the city clerk. The permittee shall not surrender or release such policy without filing in lieu thereof another policy complying with the requirements of this section, or surrendering his permit.

D. If the city, after review of such insurance policy by the city attorney, shall determine that the policy has become impaired so as to fail to afford the protection to the public contemplated by this section, he shall require new or additional insurance by giving written notice to the permittee, who shall within five days after receiving such notice, provide such new or additional insurance.

E. All releases executed by or on behalf of persons suffering damage because of work done in a street or alley by the permittee shall be filed with the city clerk by the person in whose favor such release is executed within ten days of such execution.

F. Neither the city nor any officer or employee thereof shall be liable for the financial responsibility of any insurer, or in any manner become liable for any claim, or act, or omission, relating to the work done under any such permit or the insurance thereon. (Ord. 13152 § 122, 1997; Ord. 12792 § 1, 1996; Ord. 8580, 1986; Ord. 8579, 1986; prior code § 19-10.1(a))
(Ord. No. 17391, § 10, 8-24-2010, eff. 9-1-2010)

13.16.020 Exceptions.

The insurance requirements of Section 13.16.010 shall not apply to:

A. The department of water utilities of the city or any other city department engaged in work performed as part of a public work or where work is being performed by city forces;

B. Work performed by a public utility company operating under a valid franchise from the city.

C. Driveway, curb or sidewalk work performed by a property owner in front of a building owned or occupied by him as his home. (Prior code § 19-10.1(b))

13.16.030 Violation—Penalty.

Any person who fails to provide insurance or to keep insurance in force when required to do so by this chapter shall be deemed guilty of a misdemeanor and punished as provided in Sections 1.08.010 through 1.08.030. (Prior code § 19-10.1(c))

Chapter 13.20

MISCELLANEOUS STREET AND SIDEWALK USE REGULATIONS

Sections:

13.20.010 Fires in streets unlawful.

13.20.020 Mixing mortar on paved streets.

13.20.030 Boxes, barrels, etc. on sidewalks.

13.20.040 Selling merchandise prohibited on and near public right-of-way.

13.20.060 Receiving and forwarding goods on sidewalks.

13.20.070 Poles and posts not to be placed in sidewalks—Generally.

13.20.080 Poles and posts not to be placed in sidewalks—Exception.

13.20.090 Builders excepted from restrictions.

13.20.100 Basketball backboards prohibited.

13.20.110 Bus bench franchises.

13.20.120 Waste container franchises.

13.20.010 Fires in streets unlawful.

No person shall build, kindle or maintain any fire of any nature or of any material whatever in any street, square or alley in the city. (Prior code § 19-1)

13.20.020 Mixing mortar on paved streets.

No person shall mix any lime, mortar or cement upon any of the paved streets, squares or alleys of the city. (Prior code § 19-2)

13.20.030 Boxes, barrels, etc. on sidewalks.

No person shall place any barrel, box or other article or substance on any sidewalk in the city so as to obstruct the passage along such sidewalk or any part thereof. (Prior code § 19-3)

13.20.040 Selling merchandise prohibited on and near public right-of-way.

A. Definitions. The following definitions shall apply in this section:

1. "Arterial" means a "street, arterial" as defined under "street" in Section 19.50.030 this Code.

2. "Business day" means a Monday, Tuesday, Wednesday, Thursday or Friday excluding any holiday observed by the City of El Paso where city administrative offices are closed.

3. Reserved.

4. "The downtown area" means the area bounded by Yandell Street, Kansas Street, Cesar Chavez/Border Highway and Santa Fe Street, and including the entire width of the public rights-of-way.

5. "Obstruct" means to render impassable or to render passage unreasonably inconvenient or hazardous.

6. "Public right-of-way" shall have the meaning set forth in Section 19.50.030 of this Code.

7. "Stand" means any structure, machine, box, table, container, vessel, vehicle, utility post or pole, traffic control signs or signals, building or any other thing located, placed, stopped or allowed to remain upon, over or along any street, sidewalk, alley, square, park, or public right-of-way or any portion thereof within the city.

8. "Vehicle" means any vehicle, motorized or nonmotorized, bicycle, cart, boat or other watercraft, trailer, recreational vehicle or camper.

B. Except as provided below or permitted elsewhere in this Code, it is unlawful to:

1. Have, keep, maintain, run or conduct a stand in or upon or over or along any street, sidewalk, alley, square, park or other public right-of-way, or any portion thereof within the city.

2. Sell, offer for sale, or expose to sale any commodity, goods, wares, merchandise, produce, other farm products, candy, sodas and other like refreshments, new or used vehicles, or any other articles or things of value of any kind in, from, out of or affixed to a stand, or by placement of such

items directly upon the ground over or along any street, sidewalk, alley, square, park or other public right-of-way.

3. Have, keep, maintain, run or conduct a stand in or upon public or private property along an arterial or on any portion of a vacant lot that abuts an arterial.

4. Sell, offer for sale or expose to sale any commodity, goods, wares, merchandise, produce, other farm products, candy, sodas and other edible or potable substances, new or used vehicles, or any other articles or things of value outside of a permanent building in, from, or out of a stand, or by placement of such items directly upon the ground upon public or private property along an arterial or on any portion of a vacant lot that abuts an arterial.

5. Knowingly allow any person, firm or corporation to have, keep, maintain, run or conduct a stand or sell, offer for sale or expose to sale any commodity, goods, wares, merchandise, produce, other farm products, candy, sodas and other edible or potable substances, new or used vehicles, or any other things of value outside of a permanent building in, from, or out of or affixed to a stand, or by placement of such items directly upon the ground on property along an arterial or on any portion of a vacant lot that abuts an arterial unless such sale is permitted under this section.

C. The prohibitions contained in subsection B. shall not apply to the following types of sales, including offers for sale or exposures to sale, provided that the requirements of all other applicable city code provisions are met, including but not limited to zoning regulations, licensing requirements and health regulations:

1. A sale of newspapers, pamphlets, handbills or other written or printed matter or merchandise held and sold by a person, provided that no materials or items to be offered for sale by the person are placed or stored on the public right-of-way prior to the time of sale.

2. The distribution or delivery of newspapers from a vehicle.

3. A sale from a stand of newspapers, pamphlets, handbills or other written or printed matter or merchandise sold or distributed for the purpose of disseminating news, information or religious materials, provided that such stand complies with the requirements imposed under Chapter 12.68 of this Code, does not obstruct any street, sidewalk, alley or any other public right-of-way or any elevator, aisle, hallway, entrance, or exit to which the public or a substantial group of the public has access or any parking lot or area or the exit from a parked vehicle.

4. A sale authorized through the grant of a special privilege by the city council or another sale authorized by ordinance or permit for use of the sidewalk area within public right-of-way pursuant to the requirements of the City Charter and any other applicable city ordinances within the downtown area.

5. A sale authorized through the grant by city council of a special privilege for use of the public right-of-way in compliance with the requirements of Section 15.08.120 of this Code.

6. A person, firm or corporation who is an authorized and duly licensed dealer of motor vehicles and the person, firm or corporation is selling or offering such vehicles for sale at the location named in the license issued to the person, firm or corporation under Chapter 5.72 of this Code.

7. The owner of a vehicle who offers a vehicle titled in his or her name for sale at the owner's place of residence, in accordance with the Texas Transportation Code, as amended, regarding the sale and transfer of used motor vehicles.

8. The sale of food by a licensed food establishment, including a temporary or recurrent food establishment, operating in accordance with the requirements of Chapter 9.12 of this Code and applicable zoning requirements, provided that no sales or offers of sales take place on land located within the public right-of-way unless such sale is also authorized in accordance with subsection C.4. or 5. of this section.

9. A sale by a licensed mobile food vendor operating in compliance with Chapters 9.12 and 12.46 of this Code.

10. A yard, garage, or rummage sale conducted as permitted under Title 20 of this Code.

11. A temporary sale of merchandise of the same kind normally sold by a business in a location outside of the permanent structure provided that the location on which the merchandise is sold, offered or exposed for sale is immediately adjacent to the front or side of the structure normally occupied by the business and it is on land that is owned or leased by the business and not part of the public right-of-way unless such sale is also authorized in accordance with subsection C.5. of this section, and the time period for such sale does not exceed fourteen consecutive days during any thirty-day period.

12. The storage of supplies, merchandise, equipment or goods normally carried in stock, used, produced or sold by a business in conformity with a permitted accessory use authorized under Title 20 of this Code.

13. A sale of merchandise such as ice, firewood and filled propane tanks sold by a business from display units specially constructed for such purpose and located immediately adjacent to the permanent structure of the business.

14. The sale of propane and motor vehicle fuels.

15. The sale of items from a vending machine or machine primarily serving as an automated teller machine.

16. The sale of items under a tent or temporary structure for which a permit has been issued under and in accordance with Chapter 18.02 of this Code, provided that no items are sold, offered for sale or exposed for sale at a location within one hundred feet of the closest edge of the paved portion of an arterial.

17. The sale of items at a flea market for which a permit has been issued under and in accordance with Chapter 20.08 of this Code.

18. The sale of items at an outdoor market as defined in and for which a permit has been issued under and in accordance with Chapter 9.12 of this Code, provided that no items are sold, offered for sale or exposed for sale at a location within one hundred feet of the closest edge of the paved portion of an arterial.

19. The sale of items in conjunction with a circus, show or carnival for which a permit has been issued under and in accordance with Chapter 5.20 of this Code, provided that no items are sold, offered for sale or exposed for sale at a location within one hundred feet of the closest edge of the paved portion of an arterial.

D. Members of the police department, members of the code enforcement division, the director of the department of public health, and the director of the environmental services department, and their designees may enter upon any vacant land or premises that are open to the public for business or other public purposes to inspect, enforce or to perform any function permitted under this section.

E. Members of the police department are authorized to cause any goods, wares, merchandise, produce, other farm products, candy, sodas and other edible or potable substances, new or used vehicles, or any other articles, or things of value being sold or offered or exposed for sale in violation of this section, or a stand used in connection with the sale of such items, to be removed and stored at the owner's, seller's or operator of a vehicle's expense if:

1. The owner, seller or operator of a vehicle has been given actual notice that the items being sold or offered or exposed for sale are in violation of this section; or

2. A conspicuous notice on a form developed by the city has been conspicuously attached to the vehicle or to any one of the goods or other items of merchandise or things of value stating:

a. That the vehicle or other items will be removed and stored at the expense of the owner or vehicle operator if they are not removed from the area by a specified time and date, such time and date not being sooner than twelve hours after the notice is attached to the vehicle or other items, and

b. A telephone number that is answered twenty-four hours a day to enable the vehicle or other items to be located.

F. In addition to the requirements of subsection E of this section, when a vehicle is removed, a notice must be mailed no later than the second business day after a vehicle was removed for a vehicle registered in the state of Texas and no later than the tenth business day after a vehicle was removed for a vehicle registered outside the state of Texas, to the last address shown for the owner and lienholder of record, if any, according to vehicle registration records available to the police department, or if the vehicle is registered in another state or country and the name or address of the owner or lienholder cannot be determined, to the appropriate agency of that state or country, stating:

1. A description of the vehicle;

2. That the vehicle was parked in violation of this section with a description of the location where it was parked;

3. That the vehicle was removed and stored at the expense of the owner or operator of the vehicle; and

4. A telephone number that is answered twenty-four hours a day to enable the owner or operator to locate the vehicle.

G. When a vehicle or any other item was removed pursuant to this section, and the vehicle or other items are not claimed by the owner or operator within fourteen days, the following provisions shall apply to the disposition of the vehicle or other item.

1. The provisions of the Texas Transportation Code, as amended, regarding motor vehicles abandoned in a vehicle storage facility shall apply to the disposition of a vehicle other than a bicycle.

2. For all other unclaimed items, a notice must be published in a newspaper of general circulation in the city stating:

a. A description of the items;

b. That the items were offered for sale in violation of this section with a description of the location where they were located;

c. That the items were removed and stored at the expense of the owner of the items; and

d. A telephone number that is answered twenty-four hours a day to enable the owner to locate the items.

3. Any items other than motor vehicles remaining unclaimed after thirty days after the date notice is given or published under this subsection shall be disposed of in accordance with the provisions of Article 18.17, Texas Code of Criminal Procedure, as amended.

H. If the items to be stored are edible or potable and they are contained in an open, exposed container, they are readily perishable in their present condition, or they are in need of refrigerated storage to avert spoilage, and the member of the police department has a reasonable belief that the storage of such items may constitute an imminent health hazard, the member of the police department may notify the director of the department of public health or designee who may take action in accordance with Chapter 9.12 of this Code.

I. The city council, by resolution, shall adopt a fee schedule for the charges to be imposed for the removal and storage of items under this section. Such charges shall be based on the city's costs for such removal and storage and the charges for the removal and storage of vehicles established in Section 12.08.220 of this Code.

J. An owner or operator of a vehicle other than a bicycle removed and stored under this section shall be entitled to the rights of owners of stored vehicles as set forth in Chapter 685, Texas Transportation Code, as amended, and to a post-deprivation hearing as provided in Section 12.08.220 of this code. An owner of any other item removed and stored under this section shall be entitled to a post-deprivation hearing to be conducted in the same manner as provided in Section 12.08.220 of this Code.

K. Any person violating any provision of this section shall be guilty of a misdemeanor and punished by a fine of not less than one hundred dol-

lars nor more than five hundred dollars. (Ord. 16982 § 7, 2008; Ord. 16819 §§ 4, 5, 2008; Ord. 14841 § 1, 2001: Ord. 11410 § 1, 1993: Ord. 11146 § 1, 1992: prior code § 19-7)
(Ord. No. 17391, § 11, 8-24-2010, eff. 9-1-2010; Ord. No. 17361, § 1, 7-20-2010; Ord. No. 17582, § 1, 6-14-2011)

13.20.060 Receiving and forwarding goods on sidewalks.

Nothing in this chapter shall be so construed as to prevent any merchant from occupying not to exceed one-half of any sidewalk in front or rear of his place of business in receiving and forwarding goods, wares or merchandise; provided, such articles shall not occupy such sidewalk even while thus engaged for a longer period than six hours. (Prior code § 19-8)

13.20.070 Poles and posts not to be placed in sidewalks—Generally.

No person shall erect, maintain or set any post or pole of any kind or material in any sidewalk of the city. (Prior code § 19-9)

13.20.080 Poles and posts not to be placed in sidewalks—Exception.

Section 13.20.070 shall not apply to any telephone poles, lampposts, electric light posts, telephone posts and posts for the receiving department of the United States Post Office when the same have been or may hereafter be erected by authority of the city council on the outside of such sidewalks in the manner prescribed thereby. (Prior code § 19-10)

13.20.090 Builders excepted from restrictions.

No contractor, mechanic, artisan or other person engaged in repairing or erecting any building who shall otherwise comply with the City Charter and with ordinances and regulations concerning buildings and improvements, and shall take out the requisite permits therefor, shall thereby become liable for the obstruction of the sidewalk. (Ord. 8578, 1986; prior code § 19-5)

13.20.100 Basketball backboards prohibited.

No person shall erect, maintain or set any basketball backboard of any kind or material that encroaches into any public right-of-way. (Ord. 12517 § 1, 1995)

13.20.110 Bus bench franchises.

A. This section shall be applicable to any and all bus bench franchises issued, approved or extended by the city council of the City of El Paso. The rights granted for the installation and maintenance of bus benches pursuant to such a franchise may include the right to install and maintain advertising on existing city-owned bus shelters.

B. Each franchise, unless otherwise indicated by this section, shall be governed by the terms of its franchise agreement, pursuant to those rules and regulations related to the installation and maintenance of bus benches and shelters as may be instituted and amended from time to time by the mass transit department board. Enforcement of the franchise agreements and their rules shall be the responsibility of the director of the mass transit department, or designee.

C. Terms of Each Franchise.

1. Each franchise shall be limited to a period of not more than ten years in length. If grantee is not in default of the terms hereof, the city, at its sole option, may extend the franchise for a period determined solely by the city, but in no event shall such extension exceed ten additional years. Any such extension shall be granted upon such additional terms and conditions as required by the city. Grantee must request such extension by delivering written request not later than ninety days before the original term of the franchise expires, and in the manner required by the franchise.

2. An initial franchise fee of one hundred dollars shall be required of an applicant for a franchise. The annual franchise fee required of each approved grantee shall be one hundred dollars. Payment shall be made to the comptroller of the City of El Paso on or before January 1 of each year.

3. An additional fee of two dollars per approved bench, per month, shall be paid to the comptroller of the City of El Paso. This fee shall be paid quarterly and without regard to the grantee's ability to place revenue-generating ads upon any approved benches.

4. One bench shall be offered or made available to the city, for advertising, for each twenty benches placed or maintained by a franchisee.

5. All remaining terms and conditions of a franchise shall be enumerated within each franchise agreement and those rules adopted by the mass transit department.

D. Enforcement.

1. All rules as identified within, and attached to, each franchise agreement as well as those rules implemented by the mass transit department shall be adhered to by the franchisees.

2. The director of the mass transit department shall be charged with the enforcement duties related to compliance with franchise agreements and all rules referenced herein.

3. In addition to any applicable removal, storage and disposal fees, a civil penalty of three hundred dollars shall be imposed for each illegally placed bench that is disposed of by the mass transit department director in accordance with the rules established by the mass transit department board.

4. Upon written notice to the franchisee and a forty-eight hour period for the franchisee to remedy, the director of the mass transit department may require the removal of any illegally placed benches. Upon written notice to the franchisee and a seven-calendar day period for the franchisee to remedy, the director of the mass transit department may require the repair, removal and/or replacement of any unsafe benches or other benches found to be in violation of the rules or any applicable franchise. All expenses related to such removal, including, but not limited to, storage and disposal, shall be reimbursed by the bench owner.

5. Nonpayment of any civil penalties noted within this enforcement section may result in the revocation of the franchise agreement.

E. Where a bus bench or shelter location involves a proposed use of a public right-of-way designated as a state or federal highway or road, written approval from the appropriate state or federal agency shall be required prior to approval of the location by the city. (Ord. 16792 § 1, 2007)

13.20.120 Waste container franchises.

A. This section shall be applicable to any and all waste container franchises issued, approved or whose term is extended by the city council of the City of El Paso. The rights granted for the installation and maintenance of waste containers pursuant to such a franchise include the right to install and maintain advertising on the four sides of said containers.

B. Each franchise, unless otherwise indicated by this section, shall be governed by the terms of its franchise agreement.

C. Terms of Each Franchise.

1. Each franchise shall be limited to a period of not more than five years in length. If grantee is not in default of the terms hereof, the city, at its sole option, may extend the franchise for a period determined solely by the city, but in no event shall such extension exceed one additional year. Any such extension shall be granted upon such additional terms and conditions as required by the city. Grantee must request such extension by delivering a written request to the city not later than ninety days before the original term of the franchise expires, and in the manner required by the franchise.

2. The franchise term shall begin on the date on which the franchise is approved by city council. An annual franchise fee in the amount authorized by city council through the budget process shall be required of an applicant for a waste container franchise. Payment shall be made to the Comptroller of the City of El Paso, on or before the fifteenth day following the granting of the franchise.

3. An additional fee in an amount authorized by city council through the budget process per approved waste container, per month, shall be paid to the Comptroller of the City of El Paso.

This fee shall be paid quarterly on the following dates: March 31, June 30, September 30, and December 31 and without regard to the grantee's ability to place revenue-generating ads upon any approved waste containers.

4. Ten percent of the franchisee's total waste containers shall be offered or made available to the city, for advertising of city events and public service announcements.

5. Additional terms and conditions of a franchise shall be enumerated within each franchise agreement.

D. Enforcement.

1. All rules as identified within, and attached to, the franchise agreement shall be adhered to by the franchisee.

2. The director of the department of environmental services or designee shall be charged with the enforcement duties related to compliance with franchise agreements.

3. The director of the department of environmental services shall provide the franchisee with written notice of illegally placed or unsafe waste containers. In the case of an imminent public health or safety hazard, after twenty-four hours have passed and the illegally placed or unsafe waste containers have not been removed by the franchisee, the director of the department may require the repair, removal and/or replacement of the illegally placed or any unsafe waste containers or other waste containers found to be in violation of any applicable franchise. All expenses related to such removal, including, but not limited to, storage and disposal, shall be reimbursed by the franchisee.

E. Where a waste container location involves a proposed use of a public right-of-way designated as a state or federal highway or road, written approval from the appropriate state or federal agency shall be required prior to approval of the location by the city.

(Ord. No. 18251, § 1, 9-30-2014; Ord. No. 18952, § 1, 7-23-2019)

Chapter 13.24

CITY PARKS AND RECREATION AREAS*

Sections:

13.24.010 Creation and purpose of parks and recreation department; definitions; and sale of goods and services.

13.24.020 Renting vehicles or animals—Amusement devices—Installations.

13.24.030 Authority to grant permits, licenses, leases, concessions or contracts—Permittee responsibilities; appeals.

13.24.040 Hours of closure.

13.24.050 Use of athletic fields.

13.24.060 Camping.

13.24.070 Dangerous amusements.

13.24.080 Horses.

13.24.090 Motor vehicles.

13.24.100 Closed areas.

13.24.110 Play areas for young children.

13.24.120 Dog parks.

13.24.130 Alcoholic beverages.

13.24.140 Wildlife, plants, and natural resources.

13.24.150 Fires and grills.

13.24.160 Adherence to park rules and signs.

13.24.170 Use of city parks.

13.24.180 Shared use pathways and trails.

13.24.190 Glass beverage bottles or containers.

13.24.200 Park and recreation facility use and fee authorization.

13.24.210 Enforcement.

13.24.220 Violation of Sections 13.24.010 through 13.24.150 and 13.24.170 through 13.24.190—Penalty.

*__Editor's note__—Ord. No. 17845, § 1, passed July 31, 2012, repealed the former Ch. 13.24, §§ 13.24.010—13.24.210, and enacted a new Ch. 13.24 as set out herein. The former Ch. 13.24 pertained to similar subject matter. See Code Comparative Table and Disposition List for history.

13.24.010 Creation and purpose of parks and recreation department; definitions; and sale of goods and services.

A. Creation and purpose of the parks and recreation department.

1. There is established the Parks and Recreation Department in the City of El Paso, which shall generally provide administration of the various city parks, city-operated land used for parks or recreational purposes, city open space, and parks and recreation facilities.

2. The primary function of the department shall be the performance of duties relating to the administration and utilization of city parks that are under the administration of the department; and to generally perform duties relating to city parks as to be determined by the city manager.

B. Definitions. The following definitions apply to these terms as used in this chapter.

1. "Alcoholic beverage" means alcohol or any beverage containing alcohol that is capable of being used for beverage purposes, either alone or when diluted, including but not limited to beer, wine, distilled spirits and mixed beverages containing alcohol.

2. "Amusement device" means any item that is temporarily installed for the purpose of playing on, including but not limited to climbing walls, dunking booths or inflatable items such as jumping balloons, slides, castles and similar items and temporary playground equipment.

3. "Appeals official" means the city manager or a deputy city manager as designated by the city manager.

4. "City park" means any property in the city that is designated, set aside or operated by the city for public recreational purposes, whether dedicated or developed as a park or not, or that is located in any street right-of-way and is maintained as public open space, including all build-

ings, recreation facilities, playgrounds, parking lots, driveways, pathways, trails and other areas within a park, to include Scenic Drive. Designation of property as a city park pursuant to this subsection is solely for the purposes of identifying areas governed by this chapter and shall not be construed to be a dedication of any property as a park.

5. "Department" means the parks and recreation department.

6. "Director" means the director of the parks and recreation department or a designee.

7. "Facility" shall have the meaning as defined in Section 13.24.200.

8. "Identifiable area" means a building, a shelter, a fenced athletic field, or other area subject to controlled ingress and egress as determined by the director.

9. "Roadway" means the portion of a street, alley or highway designed or ordinarily used for vehicular travel.

10. "Security guard or officer" means a uniformed private security guard who is duly licensed as provided in the Texas Occupations Code, or a uniformed peace officer.

11. "Sidewalk" means all portions of a street, alley or highway between the curblines, or the lateral lines of the roadway and the adjacent boundary lines, whether or not the same have been improved for pedestrian travel

12. "Stand" means any structure, machine, box, table, container, vessel, vehicle, utility, post or pole, traffic control signs or signals, building or any other thing located, placed, stopped or allowed to remain upon, over or along any city park or street, sidewalk, alley, square, or public right of way abutting a city park or Scenic Drive.

13. "Street," "alley," or "highway" means the entire width between the boundary lines of every publicly maintained way when any part thereof is open to the use of the public for purposes of vehicular or pedestrian travel, to include but not be limited to the roadway and the sidewalk.

C. Sale of goods and services. Except as provided herein or in Section 13.24.030, it shall be unlawful for any person to:

1. Have, keep, maintain, run or conduct a stand in or upon or over or along any city park.

2. Sell, offer for sale, or expose to sale any commodity, stock of goods, wares, merchandise, produce, other farm products, candy, sodas and other like refreshments, new or used vehicles, animals or any other articles or things of value of any kind in, from, out of or affixed to a stand, or by placement of such items directly upon the ground over or along any city park.

3. Sell, offer for sale or expose to sale any commodity, stock of goods, wares, merchandise, foodstuffs, refreshments or other edible or potable substances from any vehicle, cart or wagon, or any basket, tray, box or other receptacle driven or taken into any city park, provided that this section shall not prohibit the direct and through passage of licensed motor vehicles traveling upon dedicated public streets that pass through a city park.

4. Conduct or provide activities, lessons, instruction or other services that requires the payment of a fee for participation.

D. The prohibitions contained in subsection C. do not apply to the following types of sale or other services including offers for sale or exposures to sale, provided that the requirements of all other applicable city code provisions are met, including but not limited to licensing requirements and health regulations:

1. A sale of newspapers, pamphlets, handbills or other written or printed matter held and sold by a person, provided that no materials to be offered for sale by the person are placed on the ground or stored in the park prior to the time of sale.

2. A sale held inside a city facility located in a city park, provided that appropriate authorization for the sale has been granted upon such conditions as do not unlawfully surrender the city's right of supervision, regulation and control, are consistent with park purposes, and do not unreasonably interfere with the rights of the public to the enjoyment of the park facility.

3. A sale authorized by a permit, license, lease, concession or other contract in accordance with the city code and department procedures, granted under such conditions as to not unlawfully surren-

der the city's right of supervision, regulation and control and which is consistent with park purposes.

4. A mobile food vendor selling edible and potable substances on a public street, thoroughfare, parking lot or other paved surface located within or adjacent to a city park in accordance with the requirements established in Chapter 12.46 of this Code.

5. A sale conducted pursuant to a department-produced activity and event as authorized herein and under Section 13.24.200 of this Code.

6. An activity, lesson, instruction or other service that is authorized by a permit, license, lease, concession or other contract in accordance with the city code and department procedures granted under such conditions as to not unlawfully surrender the city's right of supervision, regulation and control and which is consistent with park purposes.

E. The prohibitions contained in subsection C do not apply to any activity that the city council has permitted or licensed in accordance with the provisions of this chapter or that is authorized by the terms of a lease, concession or contract.
(Ord. No. 17845, § 1, 7-31-2012)

13.24.020 Renting vehicles or animals—Amusement devices—Installations.

A. No person shall rent or offer to rent to another in any city park, any bicycle, motorcycle, scooter, or other vehicle, or any animal, or maintain and exhibit therein any amusement device, except as provided in this chapter.

B. No person shall set up, build or install a tent, stage or structure upon or over any city park except as provided in this chapter.

C. No person shall stake or tie items to existing landscape, flower beds, trees or other city park property except as provided in this chapter.

D. Owners of amusement devices must present a certificate of liability insurance with the city named as additional insured.
(Ord. No. 17845, § 1, 7-31-2012)

13.24.030 Authority to grant permits, licenses, leases, concessions or contracts—Permittee responsibilities; appeals.

A. The city council may grant permits, licenses, leases, concessions or contracts for any of the acts mentioned in Sections 13.24.010, 13.24.020 and 13.24.060 in city parks, upon such conditions as do not unlawfully surrender the city's right of supervision, regulation and control, are consistent with park purposes, and do not unreasonably interfere with the rights of the public to the enjoyment of the park.

B. The director of the department may issue temporary permits for temporary use of city parks, facilities and identifiable areas within city parks upon such conditions as do not unlawfully surrender the city's right of supervision, regulation and control, are consistent with park purposes, and do not unreasonably interfere with the rights of the public to the enjoyment of the park, as follows:

1. To conduct any of the acts or activities specified in Sections 13.24.010, 13.24.020, 13.24.050, or amplification under 13.28.010;

2. To allow temporary concessions in city parks that do not have an existing concessionaire contract;

3. For temporary use of identifiable portions of city parks.

C. All temporary permits issued by the director shall be in conformity with such procedures as are established by the director and on file with the department. Such procedures shall provide that in granting or refusing such permission, the director shall be guided by the following standards: whether the park, facility, or other identifiable portion of a city park has already been reserved or applied for by someone else for approximately the same time, whether the proposed use and the hours requested are such that other users of the park or residents of the neighborhood would not be subjected to undue inconvenience, whether the use is exclusive or compatible with other uses of the park, whether the proposed use is consistent with park purposes and any other factor that may reasonably bear upon the matter.

D. When issuing a permit under this chapter, the director may impose reasonable conditions concerning time, place and manner of the use to ensure compliance with this chapter and departmental policies.

E. A person applying for a permit must be eighteen years of age, or twenty-one years of age if the applicant is also applying for an alcohol permit.

F. A permittee shall comply with all permit requirements, conditions, and with all applicable laws and ordinances and the responsible party must carry the permit during the conduct of the event or use and must show the permit to any person upon request. The permittee is responsible for the conduct and behavior of their guests and participants. The permit is not transferrable. If the permittee fails to fulfill any of the conditions stated in the permit, the director may terminate the permit immediately and such termination may result in ineligibility for future permits, removal, fine, arrest, and/or forfeiture of fees. The permittee shall be responsible for cleaning and removing all litter and debris left on the city park, facility or identifiable area immediately upon the conclusion of the event. If the permittee fails to clean and remove all such litter and debris upon conclusion of the event, the city may perform such cleaning and the permittee will be responsible for the costs of the city cleaning. Payment of any city cleaning costs will be due and payable within ten days of receipt of the bill from the city comptroller.

G. The fee for the permits and uses authorized by this section shall be in the established amounts.

H. If other requirements of the city code are applicable to a permit issued under this section, it shall also be a condition of the permit granted by the director that the permittee obtain the appropriate permits, licenses, privileges or contracts including but not limited to health regulations and business licenses.

I. Appeals.

1. An applicant may appeal the denial of an application for a permit under this section in writing within ten days after notice of the denial has been received by submitting a written request to the appeals official. Within five business days, or such longer time period agreed to by the applicant, the appeals official shall hold a hearing on whether to issue the permit or uphold the denial. The applicant shall have the right to present evidence at said hearing and to question the appropriate city officials. The decision to issue the permit or uphold the denial shall be based solely on the approval criteria set forth in this chapter. The appeals official shall render a decision on the appeal within five business days after the date of the hearing.

2. The decision of the appeals official is subject to review by the city council. The applicant may appeal the decision of the appeals official to the city council by submitting a written appeal request to the appeals official, who shall forward the request for placement on the agenda of the next available regular city council meeting in compliance with all ordinances, policies and statutes relating to the placement of items on the council agenda and the posting of the agenda. The decision to issue or uphold the denial shall be based solely on the approval criteria set forth in this chapter.

(Ord. No. 17845, § 1, 7-31-2012)

13.24.040 Hours of closure.

A. All city parks, except as provided herein, shall be closed to the public every night from October 1 through April 30 each year between 10:00 p.m. and 6:00 a.m. and every night from May 1 through September 30 each year between 11:00 p.m. and 6:00 a.m. unless otherwise posted in accordance with department policies. Parks in the downtown management district, however, shall remain open until 1:00 a.m. Any request that a city park remain open past 10:00 p.m. from October 1 through April 30 or past 11:00 p.m. from May 1 through September 30, or a city park within the downtown management district remain open past 1:00 a.m. shall require a temporary permit issued by the director in accordance with Section

13.24.030. In granting such permit, the director may impose whatever conditions he deems necessary to protect the health, safety and welfare of the general public.

B. Recreational centers, senior citizen centers, athletic fields, meeting halls, McKelligon Amphitheatre, reserves, and park shelters may be allowed to remain open until 1:00 a.m., as department of parks and recreation policies may prescribe. Any request that the aforementioned facilities remain open past 1:00 a.m. shall require a temporary permit issued by the director in accordance with Section 13.24.030. In granting such permit, the director my impose whatever conditions he deems necessary to protect the health, safety and welfare of the general public.

C. This section shall not apply to the following persons if in the park or facility in the performances of their duties: peace officers, physicians, ambulance operators or attendants, employees of the city, and employees of public utility companies.

D. In the case of parks through which there are dedicated streets used for general travel (that is, not merely for access to the interior of the park), this section shall not apply to persons traveling through the park on such dedicated streets.

E. A person may appeal the director's decision in accordance with the procedure set forth in Section 13.24.030.

(Ord. No. 17845, § 1, 7-31-2012; Ord. No. 18369, § 1, 6-9-2015)

13.24.050 Use of athletic fields.

A. No person shall play any game on, or otherwise make use of, any athletic field belonging to the city that is designated as a game "only" field for which fees are assessed by listing its use on schedule C of the city's annual budget resolution or by other applicable resolution of city council and being posted with one or more signs giving notice of the restricted use, unless written permission for using the field at the designated time is first obtained from the director of the department. Athletic fields in this category can only be used for games and not for practice.

B. No person shall play any game on, or otherwise make use of, any athletic field belonging to the city that is designated as a "permit required" field for which fees are assessed by listing its use on schedule C of the city's annual budget resolution or by other applicable resolution of city council and being posted with one or more signs giving notice of the restricted use, unless written permission for using the field at the designated time is first obtained from the director of the department. Athletic fields in this category can be used for practice or for games.

C. This section shall not apply to persons using an athletic field under a lease, concession, or other contract authorized by the city council.

(Ord. No. 17845, § 1, 7-31-2012; Ord. No. 18654, §§ 1—3, 3-21-2017)

13.24.060 Camping.

A. No person shall camp in any city park, or set up any tent, shack, or other shelter, or lay out any bedroll or other sleeping equipment therein, except upon approval of the city council by resolution. This section does not apply to camping in permanent cabins or structures provided by the city for that purpose or to department produced activities or events.

B. A person may make a request to the city council to camp. The written request shall be submitted to the director who shall forward the request for placement on the city council agenda in compliance with all ordinances, statutes and the council's rules of order relating to the placement of items on the agenda and posting of the agenda. The decision of whether to approve the request to camp shall be made by resolution of the council. In granting such approval, council may impose whatever conditions it deems necessary to protect the health, safety and welfare of the general public.

(Ord. No. 17845, § 1, 7-31-2012)

13.24.070 Dangerous amusements.

A. No person shall have within any city park any air rifle, pellet or b.b. gun, spring gun, bows and arrows, instruments capable of throwing a projectile, or possess any firearm, or throw or launch any stone, hard ball, remote control airplane, or other object likely to inflict injury; or drive any golf ball. No person may use rollerskates, inline skates, bicycle, skateboard or any similar device in areas in which the director has posted a sign prohibiting such activities. This section does not apply to acts done in an area designated by the city for such purpose or to a person who is licensed to carry and lawfully carrying a concealed handgun under Subchapter H, Chapter 411, Government Code and Chapter 46, Penal Code.

B. No person shall possess a handgun except as provided in City Code Section 10.12.020.
(Ord. No. 17845, § 1, 7-31-2012; Ord. No. 19226, § 1, 8-31-2021)

13.24.080 Horses.

No person shall ride or have in any city park any horse or other bridled animal, except on a bridle trail or trailhead designated by the city for that purpose and where permitted, the animal shall be thoroughly broken, properly restrained, ridden with due care, not allowed to graze or go unattended, and not hitched to any furnishing, rock, tree, or shrub other than a hitching post at a trailhead provided for that purpose.
(Ord. No. 17845, § 1, 7-31-2012)

13.24.090 Motor vehicles.

No person shall drive, or ride in or on, any motor vehicle, four-wheeler, all terrain vehicle, motorcycle, go cart, dirt bike, or any other similar motorized device except for a motorized wheelchair, in any city park or trail, except licensed vehicles may drive or travel on streets that are graded or surfaced for vehicular travel and of sufficient width for use by the vehicle. Provided this section shall not apply to the following persons when engaged in the performance of their duties: Peace officers, ambulance operators or attendants, physicians, employees of the city, employees of a public utility company, or persons under contract with the city performing construction, maintenance, or other necessary work in city park or a trail.
(Ord. No. 17845, § 1, 7-31-2012)

13.24.100 Closed areas.

A. The director of the department may temporarily close city parks or identifiable areas to the public entry for maintenance, construction, health, safety and welfare, or otherwise restrict use until such time as the area or facility can be made available for public use.

B. Except in emergency circumstances, notice of closure shall be posted and no person shall enter closed or restricted areas.

C. No person shall enter areas closed due to flooding or areas that are the subject of a flood ban.
(Ord. No. 17845, § 1, 7-31-2012)

13.24.110 Play areas for young children.

A. Playground areas and equipment shall be used only as intended, and shall be used by persons of appropriate age. The director may designate playground areas where the equipment may be exclusively used by children twelve years of age and under. Areas so designated shall be posted with one or more signs giving notice of the restricted use.

B. When an area is so designated no person except children twelve years of age and under shall play on the equipment; provided however such children may be assisted in their play by their parents, guardians, or persons whom a parent or guardian has placed in charge of the children.
(Ord. No. 17845, § 1, 7-31-2012)

13.24.120 Dog parks.

A. A person may allow dogs to be without a leash in areas designated and constructed for such purposes ("dog parks" or "off-leash area") provided that each dog remains under immediate per-

sonal supervision and command of the person, the person has a leash in their possession at all times, and posted rules are followed.

B. No person shall allow a child under the age of seven years in the off-leash dog area. Children ages seven to twelve must be accompanied by an adult. Children may not run with, or chase after dogs in the off-leash area.

C. No person shall allow a puppy less than four months of age nor female dogs that are in heat into the off-leash dog area.

D. No person shall take more than three dogs into the off-leash area.

E. If a dog exhibits dangerous or aggressive behavior towards other dogs or person, the person responsible for such dog shall remove the dog from the dog park immediately.

F. Dogs must be on-leash when entering and exiting. No person shall bring a dog to the off-leash area with a spike collar.

G. No person shall bring any other animals to the dog park except for dogs.

H. No person shall smoke or bring food or alcohol into the off-leash area.

I. Persons are responsible for the actions of any dog they bring into the off-leash dog area.
(Ord. No. 17845, § 1, 7-31-2012)

13.24.130 Alcoholic beverages.

A. No person shall possess or consume an alcoholic beverage in any city park, facility or identifiable area, except as provided in this chapter.

B. The city may, by ordinance and lease agreement leasing a city park or portion of a city park, exempt portions of such park from the prohibitions of this section.

C. The director may grant permission to possess and consume alcoholic beverages in a city park or identifiable area of a city park if the following conditions are met:

1. The applicant has executed a rental agreement for the use of the city park or identifiable area pursuant to the guidelines of the department;

2. The applicant has paid the fee for the use of the city park or identifiable area;

3. The applicant, as part of the agreement, will restrict alcohol consumption to persons twenty-one years of age or older;

4. The applicant, as part of the agreement, has agreed to provide a minimum of one security guard per one hundred persons expected at the event in order to protect the health, safety and welfare of participants, other park users and the general public. In addition to any other authority, the security guard shall be entitled to summon the appropriate peace officer in the event of violation of this chapter or any other chapter, rule, regulation or statute; and

5. The applicant has agreed to provide portable toilets for outdoors events, control of ingress and egress, trash disposal, and any other reasonable conditions imposed to protect the health, safety and welfare of the general public.

6. If not indoor or fenced, the applicant has agreed to erect event site perimeter fencing consisting of chain link preformed free standing panels, no less than six feet high with vertical support no further than ten feet apart.

D. The director of the department may grant permission for the possession and consumption of alcoholic beverages for an adult event sponsored by the department, supervised by a city employee and taking place within a city park or identifiable area in a city park.

E. Permission granted pursuant to Section 13.24.130 C. or D. shall include the right to transport alcoholic beverages to and from the identifiable area.

F. It shall be a defense to prosecution under Section 13.24.130 if at the time of the offense, the person charged was in an identifiable area for which the director of the department or the city council had granted permission to possess and consume alcoholic beverages pursuant to this section, or was transporting alcoholic beverages to or from such an identifiable area.

G. Denial of permission by the director of the department may be appealed within ten days of denial after notice of the denial has been received by submitting a written request to the appeals official. Within five business days, or such longer time period agreed to by the applicant, the appeals official shall hold a hearing on whether to issue the permit or uphold the denial. The applicant shall have the right to present evidence at said hearing and to question the appropriate city officials. The decision to issue the permit or uphold the denial shall be based solely on the approval

criteria set forth in this chapter. The appeals official shall render a decision on the appeal within five business days after the date of the hearing.

H. The city council in its discretion may grant permission to possess and consume alcoholic beverages in open park areas for special or ad hoc events; provided, however, in granting such permission the city council shall impose whatever conditions it deems necessary to protect the health, safety and welfare of the general public.

I. Section 13.24.130 does not repeal or modify Chapter 5.02 (alcoholic beverages), which shall remain in effect.
(Ord. No. 17845, § 1, 7-31-2012)

13.24.140 Wildlife, plants, and natural resources.

A. All wildlife within the boundaries of a city park is protected. No person may harm, harass, hunt, trap or remove any animal including mammals, fish, insects, birds, reptiles, or other living creature from any city park except upon written approval of the director of the department. The prohibition pertaining to fish shall not apply where fishing is permitted by an individual in possession of a valid Texas fishing license.

B. All plantlife within the boundaries of a city park is protected. No person shall willfully mutilate, injure, burn, destroy, thrash, or remove any live tree, shrub, vine, wildflower, grass, sedge, fern, moss, lichen, fungus or any other member of the plant kingdom or portion thereof, except upon written approval of the director of the department. No person shall collect or harvest dead wood or plants, or portions thereof, except upon written approval. The collecting of nuts, seeds and pods on the ground is allowed; the thrashing of trees and shrubs is prohibited.

C. All sites, objects, buildings, artifacts, implements, and locations of historical, archaeological, geologic, scientific or educational interest of every character located in, on or under the surface of any city park are protected. No person may remove excavate, take, dig into, or destroy any site, object, building, artifact, implement or location of archaeological, geological, scientific or historical interest without having permits as required by the State of Texas Natural Resources Codes, and without having written permission of the director of the department.

D. No person may cut, gather, or collect wood or other combustible material at any city park for use as firewood or fuel except for material designated for this purpose by the director of the department.

E. This section does not apply to city employees performing their assigned duties.
(Ord. No. 17845, § 1, 7-31-2012)

13.24.150 Fires and grills.

A. No person may light, build or maintain a fire on or in a city park except in a device provided or designated for such purpose.

B. Portable barbecue grills of metal construction may be brought into city parks by persons for use in picnic areas and shall be attended at all times by a person eighteen years of age or older. At no time may barbecue grills be placed upon pathways, sport courts, parking lots and the like or otherwise impede the use of such areas for their intended purpose. Barbecue grills must have a minimum twelve-inch clearance from the ground or surface it is placed on.

C. Charcoal must be fully extinguished and removed from the city park by the user.
(Ord. No. 17845, § 1, 7-31-2012)

13.24.160 Adherence to park rules and signs.

A. The director is authorized to create reasonable rules regarding use of city parks. Such rules shall be posted on signage at applicable city parks. All persons shall comply with the signs and markers installed in city parks by the department. Department staff is authorized to revoke a person's privilege to participate in department activities or to direct a person to leave a city park for failure to comply with such signs.

B. Rules and conditions of use that address situations specific to a park facility may be developed and posted by the director. Persons shall comply with such rules.
(Ord. No. 17845, § 1, 7-31-2012)

13.24.170 Use of city parks.

A. Outdoor city parks are generally available for public use on a first come, first served basis except for areas that require entrance or other fees, or that have previously been issued permits granting priority or exclusive use.

B. No person shall use or occupy a facility or identifiable area when such use conflicts with the use by persons holding a permit.

C. Persons engaged in disruptive, destructive or hazardous conduct may be warned and asked to stop such conduct immediately by any department employee or official under Section 13.24.210. In circumstances where a patron's conduct is unlawful, or poses an imminent threat of injury or prevents the public enjoyment of the city park, department employees or officials under Section 13.24.210 may eject such persons by verbally demanding that the person leave the city park.

D. Persons may casually perform as artists or entertainers in a city park provided that they do not block sidewalks, roadways, or other recreational amenities, and they maintain a minimum one hundred feet of distance from existing park concessions or persons using a city park under a permit issued by the department. No amplified sound, or juggling of potentially hazardous materials or items is allowed. Any money exchanged must be on a "tips" basis only.
(Ord. No. 17845, § 1, 7-31-2012)

13.24.180 Shared use pathways and trails.

On pathways and trails, bicyclist shall yield to jogger, and jogger to walker. Users shall not be two or more abreast when this action will impede other users on the pathway or trail.
(Ord. No. 17845, § 1, 7-31-2012)

13.24.190 Glass beverage bottles or containers.

A. No person shall use or possess any glass beverage bottle or other glass beverage container in any city park or outdoor facility.

B. This section shall not apply to sealed glass beverage bottles or other sealed glass beverage containers carried to and from, or kept within an indoor facility located within a city park by a person who has obtained a use agreement or permission from the director of the department for the use of such building.
(Ord. No. 17845, § 1, 7-31-2012)

13.24.200 Park and recreation facility use and fee authorization.

A. Facility uses. The City Council of El Paso authorizes the department director to establish programs, activities, classes, events, and other general services as are specifically offered and listed in the fee schedule at any and all city parks and recreational facilities managed by the department. The city council establishes priorities for the use of all city parks and recreational facilities as follows: (1) programs, activities, classes, events, and general services conducted by the parks and recreation department, which includes scheduling time or allowing uses, as appropriate within the facilities, for casual, unregimented recreational activities or uses commonly referred to as drop-in uses; (2) school activities, programs or events scheduled pursuant to an inter-governmental agreement; (3) other official activities, programs or events of the city; (4) revenue producing facility rentals; and (5) no charge uses by persons and entities as permitted under this subsection B.2.a.iii. of this section. All uses, other than drop-in uses, will require an application, permit or written contract.

B. Fees. The City Council of El Paso authorizes the department director to charge a fee for facility rental and use as well as a fee for programs, activities, classes, events, and other general services as are specifically offered and listed in the fee schedule provided at any and all city parks and recreational facilities managed by the department.

Such fees may include entry fees for participation in department-produced activities and events. General or flat fees shall be established, as well as other fees which may deviate from the standard fee based upon non-resident, commercial or non-profit status and shall be in the amounts as set by the city council through its budget resolution or other duly adopted resolution ("fee schedule"), in accordance with the following guidelines and criteria, as well as the criteria specified with the definitions for such terms:

1. Rental authorization. The City Council of El Paso authorizes the parks and recreation department ("department") director or designee to rent city-owned park and recreational facilities to the citizens of El Paso for recreational, educational, or leisure-time activities, programs, or events. Said rental will be permitted when such does not conflict with activities, programs, or events officially sponsored by the City of El Paso; scheduled school activities, programs, or events pursuant to inter-governmental agreements; or other activities, programs, or events previously approved by the City Council of El Paso or the department director.

2. Facility rental and use fees. The fees for a paid rental or use of a facility shall include the fee as set forth in the fee schedule and the administration fee, which is a non-refundable processing charge to compensate the department for reserving the facility or park area for use by the renter and processing the associated contracts. If alcohol is to be served during a rental under this section, an additional fee, based on one security guard per one hundred participants, and as set forth in the fee schedule, shall be charged to the renter. If the rental is for the purpose of conducting a party or other event where food, beverages or other activities will take place where litter or debris may be left behind, a cleaning charge shall be made in the amount set forth in the fee schedule. If the rental includes the use of catered food services or any other commercial use that is incidental to the rental, an additional fee shall be charged in the amount set forth in the fee schedule for such use.

a. Room rentals. Room rentals include any and all rooms or portions therein in all recreation, senior, sports, multipurpose and arts/cultural facilities that are designated by the director for use by the public. Rates shall be applied and fees charged in the amount set forth in the fee schedule.

i. Other city departments, to include city elected officials, may use rooms in all parks and recreation facilities for official business at no charge, on a space-available basis, during normal hours. Normal operating hours may vary among facilities. Use of rooms by other city departments, for official business during non- operating hours will be charged at the standard rate. Any city elected official desiring to use a room during non-operating hours for the conduct of his official business, such as holding a public meeting to inform constituents of issues affecting the community, may do so at no charge provided that no other city facility is reasonably available for the meeting, such use is timely scheduled, such use is not within ninety days preceding any city election, and such use is a special, occasional use and is not a standing or regularly scheduled meeting.

Any city elected official submitting a request for use of a room during non-operating hours shall submit such request in writing to the director not less than seven days in advance of the requested use, and if necessary, the city council may take appropriate action to resolve any issue as to whether a requested use is in conformity with and appropriate under the requirements set forth in this section; provided however, in no event shall a use of a room without charge by a city elected official be permitted for a personal or political use, nor shall a city elected official reserve a room under this section for a meeting, activity, function, or event that will not be attended by the elected official.

ii. County, state, federal agencies and other governmental entities may use rooms in all park and recreation facilities for official business at no charge, on a space-available basis, during normal operating hours. Normal operating hours may vary among facilities. Use of rooms by county, state, and federal agencies for official business during non-operating hours will be charged at the standard rate.

iii. The city council has established that meeting rooms that are appropriate for public use may be used by any person or entity, other than a for-profit entity or individual conducting for-profit business/commercial speech activities, during normal operating hours on a first come, first serve basis as space is available, as the city council has found that such uses are appropriate. Normal operating hours may vary among facilities. Use of such rooms during non-operating hours will be charged the appropriate rate as set forth in the fee schedule.

b. Shelters, reserve areas, rose garden, downtown plazas. Fees will be assessed and paid at the time that a renter reserves a shelter, reserve area, rose garden, pavilion, skate park, park area, or the San Jacinto or other downtown Plazas. Additional charges shall be assessed for the use of electricity at the downtown plazas for which electricity use is established by the director as an optional use and a separate electricity charge is set forth in the fee schedule.

c. Gymnasium rental. The facility rental for gymnasiums shall be based on the size of the given facility (i.e., small, medium, large and extra large, and full court or half court), and the purpose for which the gymnasium will be used. An additional fee shall be charged as set forth in the fee schedule for each use that is not an athletics sports use. The department director shall determine and designate the appropriate size for each gymnasium for purposes of assessing a rental fee for the same.

d. Sports and athletic venues. Field practice, sports, and athletic venue fees, game permit fees, and tournament fees shall be applied, when applicable. Charges shall be made for the use of the various sports fields as set forth in the fee schedule to include the costs of field preparation and for lighting the field, which may be charged as included or separate fees, as may be appropriate. Field practice rentals shall not include the additional administration fee.

i. All players participating in any independent league utilizing a department facility will be charged a per season player fee. If a season exceeds four months, the player will be assessed a fee for two seasons.

ii. One security guard per one hundred participants will be charged per tournament rental. Additional security guard(s) may be required as deemed necessary by department staff at renter's expense.

e. Multi use or long term use not to exceed one year. The fee for a permit issued under this chapter for repeated uses or long term uses, shall be in the amounts set forth in the fee schedule and shall be based upon the type of use, and length of time of the use.

3. Activities, programs, classes, and general services fees. The fees for activities, programs, classes, and general services will additionally be based on anticipated enrollment and use, class frequency, cost of instructor(s), if any, supplies, materials, and staff. Such fees shall be charged in the amounts set forth in the fee schedule or specifically calculated according to the formula set forth in the fee schedule. When a stated formula includes an administrative fee charge as part of the fee calculation, that portion of the fee shall be as set forth in the fee schedule as the administrative fee charge.

a. Sports league and tournament fees shall be based on anticipated registration, equipment, supplies, materials, staffing, and awards.

b. The department is authorized to conduct background checks for all coaches participating in city leagues and tournaments, issue identification cards for all participants, and charge the appropriate fees for such services as set forth in the fee schedule.

4. Department-produced activities and events. The parks and recreation department director shall be authorized to create community special events and activities for the public including the establishment of appropriate outdoor sales at city parks and recreational areas and rummage sales at the senior centers in accordance with requirements established in Title 20 of this Code, which may include allowing members of the public to make

limited commercial uses of the department's facilities and parks in conjunction with such events and sales, for the purpose of providing entertainment, food service, or other amusement for the public in conjunction with the event or sale, in accordance with the policies and guidelines that are approved by a resolution of the city council. Special events and activities occurring in or using locations other than the city parks and recreational facilities managed by the department shall be authorized by the city council or may be conducted in accordance with the policies and guidelines for such events and activities that are approved by a resolution of the city council. For purposes of this section, a special event or activity shall not include field trips, programs, or activities occurring outside of a city parks and recreational facility that are incidental to an activity, program or class conducted primarily within a facility or which are part of the department's day care services or youth development programs. The fees charged for such events shall be in the amounts set forth in the fee schedule for the activities and events identified and listed therein or as set by the council by other appropriate resolution.

C. Use of parks and facilities for displays and advertising—Fees. The parks and recreation department director shall be authorized to designate portions of sports fields and facilities in which it is appropriate to allow rentals of the space for the purpose of temporarily hanging banners for display, to include but not be limited to advertising. Such uses shall be permitted in accordance with the policies and guidelines that are approved by a resolution of the city council. A fee for displaying such banners shall be charged as set forth in the fee schedule.

D. For the purposes of these fees, including the listing of such fees as set forth in the budget resolution or other appropriate resolution of the city council, the following definitions apply:

1. "Facility" means any building, structure, designated area or enclosed area that is in a city park or other area managed by the department, to include but not be limited to shelters, reserve areas, rose gardens, pavilions, skate parks, recreational facilities, community centers, senior centers, sports centers, aquatics venues, athletic venues and downtown plazas.

2. "Prime time" means Monday through Friday from 5:00 p.m. through 1:00 a.m. of the following day; and during all operating hours on Saturday, Sunday and city recognized holidays.

3. "Class," "program" or "activity" means a structured or organized event, designed to meet a recreational or educational need, under the specific supervision of facility staff, instructor, trainer or contractor.

4. "Leisure interest class or workshop" means a program, class or activity that is taught by an independent contractor.

5. "Senior discount" means the discount available as set forth in the fee schedule for a person who is age sixty or older and who is enrolling in a leisure interest class or workshop or who is using a weight room, boxing room or billiard room on a monthly or yearly fee basis.

6. "Multiple child discount" means the discount available as set forth in the fee schedule for families (household) with more than one child enrolling during the same transaction in any leisure interest class, mini sports program or other program, class or activity that requires individual registration prior to participation. This discount does not include day care and after school programs.

7. "General admission or flat rate" means the fee that is charged for facility uses and services for which it is appropriate to charge a single, uniform rate, rather than establishing separate fees based on the type of user. Such fees, when established, shall be listed on the fee schedule as a single, uniformly charged fee.

8. "Standard rental rate" means the base rate and fee from which the commercial, non-profit and non-resident rates are determined, and which is charged to persons when those rates are not applicable.

9. "Commercial rate" is the rate charged to persons, organizations or groups who charge a fee

or require a donation for admission to the event or program in question, with the exception of those eligible for the non-profit rate.

10. "Non-profit rate" means the rate that is charged to an individual, organization or group that is recognized as a non-profit organization under the laws of the State of Texas, or who has been given tax-exempt status under the United States Internal Revenue Code, or both.

11. "Non-resident Rate" means the rate that is charged to those persons who do not reside within the city limits of the City of El Paso. Non-resident fees may be established so as to cover a portion of the costs of a program, activity, etc., for which the user fee established for a city resident includes a subsidy from the city's general fund. The department shall establish written procedures for the verification of residency of persons, when necessary.

E. Needs assessment scholarship program. The department director is authorized to establish a needs assessment scholarship program, enabling the waiver of fees, in whole or in part, for children who are participating in leisure interest classes, mini sports programs or other programs, classes or activities that require individual registration prior to participation, and who reside the majority of the time in a household in which the gross income, within the previous twelve months, is at or below eighty percent of the area median income, as established annually by U.S. Department of Housing and Urban Development (HUD) income limits, subject to income verification. Income eligibility shall be determined by the sum of the gross income of all family members residing in the household. Verifiable eligibility documentation for each participant served under this program must be maintained, updated at least every twelve months. City council shall establish the maximum annual program funding amount and the maximum benefit per participant in the annual budget resolution. Fee waivers will be applied on a first come, first served basis. Once the maximum annual total program funding amount is reached during the fiscal year, the Needs Assessment Scholarship Program will be discontinued for the remainder of the fiscal year, subject to additional appropriation of funds to support the program. The Needs Assessment Scholarship Program does not include day care.

(Ord. No. 17845, § 1, 7-31-2012; Ord. No. 018867, § 1, 10-30-2018; Ord. No. 18966, § 1, 8-20-2019)

13.24.210 Enforcement.

The employees assigned to the code enforcement division are authorized to enforce the provisions of this chapter and shall have the power to issue misdemeanor citations to any persons violating the provisions of this chapter.

(Ord. No. 17845, § 1, 7-31-2012)

13.24.220 Violation of Sections 13.24.010 through 13.24.150 and 13.24.170 through 13.24.190—Penalty.

Any person violating Sections 13.24.010 through 13.24.150 and 13.24.170 through 13.24.190 shall be deemed guilty of a misdemeanor and upon conviction shall be punished by a fine not to exceed five hundred dollars.

(Ord. No. 17845, § 1, 7-31-2012)

Chapter 13.25

EL PASO ZOO

Sections:

13.25.010 El Paso Zoo fee authorization.

13.25.020 El Paso Zoo parking lot use and fees.

13.25.030 El Paso Zoo greenhouse—Authority to sell plants and trees.

13.25.010 El Paso Zoo fee authorization.

A. Fees. Fees for admission to the El Paso Zoo (zoo), admission to zoo designated signature events, zoo designated promotional admission discounts, participation in zoo education, adventure and group programs and facility service or equipment rental shall be in the amounts set forth in the fee schedule and administered in accordance with adopted policies.

B. Admission fees for reserved school groups may be discounted as set forth in the fee schedule. An advance reservation and completed application will be required of any school group prior to entrance at the zoo. School groups shall agree to comply with zoo policy concerning the conduct of school group members while at the zoo to be eligible for the school group admission fee discount. The director may accept reservations and the payment for food items provided to school groups by the zoo's concessionaire, as may be provided for in the effective contract between the city and the zoo's concessionaire. School groups are defined to include any public or private licensed child daycare, head-start, pre-kindergarten, kindergarten, primary, secondary, high school, home-school groups, and higher education entities. Minimum number of students may apply per school group.

C. Bulk ticket discount rate. The director of the El Paso Zoo (director) is authorized to provide a discount as set in the fee schedule for advanced purchase of bulk admission to the zoo in blocks of fifty or more tickets.

D. The director is authorized to offer discounted admission to the zoo up to fifty percent of an established fee.

E. No fee admissions.

1. General admission fees will not be charged to members or employees of the El Paso Zoological Society (EPZS) and the zoo concessionaire, pursuant to the terms of their respective contracts wit hthe City of El Paso. Proof of association with such groups will be required prior to waiver of the general admission fee. Members of other zoological societies that have a reciprocal admission agreement with the EPZS shall be admitted according to the respective reciprocating agreement provisions.

2. General admission fees will not be charged for employees of the zoo.

3. General admission fees will not be charged to members of the Association of Zoos and Aquariums, zoo activity volunteers and individuals conducting official business at the zoo. Proof of association with such groups will be required prior to waiver of the regular admission fee.

F. Fees for city employees. General admission fees for city employees displaying a valid city ID will be discounted as set in the annual fee schedule. Admission fees for family members of a city employees will be discounted as set in the annual fee schedule, provided that the family members are accompanied by the city employee.

G. Fees for the use of zoo amenities. Fees for the use of any zoo amenities will be established as set in the annual fee schedule. Discounts for members of the El Paso Zoological Society are allowed as established in the annual fee schedule. (Ord. 16989 § 1, 2008: Ord. 16441 § 1, 2006: Ord. 15710 § 1, 2004; Ord. 15557 § 1, 2003: Ord. 15485 § 1, 2003; Ord. 14503 § 1, 2000; Ord. 12908 §§ 1, 4, 1996: Ord. 12617 § 1, 1995: Ord. 11640 § 2, 1993) (Ord. No. 17166, § 1, 8-11-2009; Ord. No. 18068, § 1, 8-20-2013, eff. 9-1-2013; Ord. No. 18828, § 1, 8-7-2018)

13.25.020 El Paso Zoo parking lot use and fees.

A. The parking fee for zoo patrons, if any, is as set forth in council resolution. This fee shall not apply to any individual or group otherwise exempt from admission fees pursuant to this chapter.

B. The parking fee for non-zoo patrons is as set forth in council resolution. In lieu of charging the required fee, the zoo director is authorized to enter into reciprocal use agreements not to exceed one year in duration with other area venues which allow the city to gain necessary access to overflow parking without significantly restricting or impeding necessary zoo patron parking. (Ord. 16441 § 3, 2006: Ord. 12908 § 3, 1996; Ord. 11640 § 3, 1993)

13.25.030 El Paso Zoo greenhouse—Authority to sell plants and trees.

A. From time to time, there is a desire to sell certain plants and trees from the greenhouse located on the El Paso Zoo grounds.

B. Through the passage of this section, the city council authorizes the director of the El Paso Zoo to sell such plants and trees.

C. The Director of the El Paso Zoo is authorized to sell plants and trees from the greenhouse at the approximate fair market value of said plants and trees. The fair market value shall be determined by the Director of the El Paso Zoo, or his/her designee by:

1. Surveying no less than four commercial entities and obtaining the price at which the entities sell the plants and trees to the public; and

2. Ascertaining the average of the prices charged by the commercial entities. The survey shall be conducted by the Director of the El Paso Zoo, or his/her designee, at six-month intervals. (Ord. 11665, 1993)

Chapter 13.28

SOUND AMPLIFYING DEVICES*

Sections:

13.28.010 Definitions.

13.28.020 Permit required.

13.28.030 Permit application.

13.28.040 Permitting criteria and process.

13.28.050 Approval or denial of application.

13.28.060 Waiver of fee.

13.28.070 Appeals.

13.28.080 Violation—Penalty.

13.28.010 Definitions.

For the purposes of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

"Appeals official" means the city manager or a deputy city manager as designated by the city manager.

"Business days" means the weekdays excluding legal holidays.

"Downtown government/business area" means the area bounded by Yandell Street to Campbell Street; proceeding south on Campbell Street to Mills Street; proceeding east to Ochoa Street; proceeding south to Paisano Street; proceeding west on Paisano Street to Durango Street; proceeding north on Durango Street to Missouri Street; proceeding east on Missouri Street to Santa Fe Street; proceeding north on Santa Fe Street to Yandell Street; and proceeding east on Yandell Street to Campbell Street; and including the entire width of the public rights-of-way used for vehicular traffic within said area.

"Permit official" means the person or persons designated by the city manager as being responsible for issuing permits under this article. The city manager may designate different persons as the permit official for different categories of permitted events and for different facilities or locations.

"Sound amplifying device" means a loudspeaker, amplifier, public address system or any other artificial sound system that amplifies and plays sound for the purpose of publicly projecting or broadcasting the sound. (Ord. 16318 § 1, 2006) (Ord. No. 17338, § 9, 6-1-2010)

13.28.020 Permit required.

A. A person or an organization desiring to use a sound amplifying device on a street, sidewalk, city park or other place held by the city for public use shall apply for and obtain a permit for such use in accordance with the requirements of this chapter.

B. A person or an organization applying for a special privilege license, permit, or temporary or special event permit is exempt from having to pay the established fee for a permit in accordance with the requirements of this chapter. (Ord. 16318 § 2, 2006)
(Ord. No. 17983, § 1, 4-2-2013; Ord. No. 18381, § 2a), 7-7-2015)

13.28.030 Permit application.

A. Filing Application. An application for an amplification permit shall be made in writing on a form prescribed by the permit official at least five business days before the commencement of the use of amplification.

B. Late Application. Notwithstanding the preceding subsection, the permit official may consider an application that is filed at least three business days but not less than five business days before the commencement of the proposed use where the purpose of such event is a spontaneous response to a current event, or where other good and compelling causes are shown and the short notice does not unreasonably hinder or prejudice the city in any necessary preparation.

C. Application Form.

1. The application must contain the following:

a. The name, address, and telephone number for the person in charge of the proposed event and

** **Prior history:** Prior code §§ 15-26(1)—15-26(8) as amended by Ords. 9176, 12116, 12117, 12171, 12388, 12912, 15261.

the name of the organization with which that person is affiliated or on whose behalf the person is applying (collectively "applicant");

b. The date, time and place of the proposed use of amplification, including the hours at which the use of amplification will begin and end;

c. The number of and sound amplifying capacity of the microphones, amplifiers and speakers or other sound amplifying devices proposed to be used;

d. A statement of the purpose of the use and whether or not the purpose of the use is advertising any goods, property, services, or entertainment, the primary purpose of which advertising is the making of a profit for a business; and

e. Such other information, attachments, and submissions that are requested on the application form.

2. The application must be signed and when submitted not in connection with or simultaneous to an application for a parade, temporary, or special event permit be accompanied by payment of a nonrefundable application fee in the amount of fifteen dollars. Effective September 1, 2006, the application fee shall be in the amount set by the budget or other appropriate resolution of the city council, provided however, that if such fee is not contained in such a resolution as of September 1, 2006, the fee set herein in the amount of fifteen dollars shall continue until such time as the fee is established in the budget or other appropriate resolution of the city council. The fee shall not apply to an application submitted by a governmental entity.

3. Any person submitting a late application that is accepted pursuant to subsection B of this section shall be charged an additional fee in the amount of fifteen dollars. (Ord. 16318 § 3, 2006) (Ord. No. 18381, § 2b), 7-7-2015)

13.28.040 Permitting criteria and process.

An application may be denied for any of the following reasons:

1. The application is not fully completed and executed;

2. The applicant has not tendered the required application fee or submitted a request for a waiver of the fees in conformity with Section 13.28.060 of this chapter within times prescribed;

3. The application contains a material falsehood or misrepresentation;

4. The applicant is legally incompetent to contract or to sue and be sued;

5. The applicant has on prior occasions made material misrepresentations regarding the nature or scope of an event involving amplification;

6. The applicant has previously permitted a violation or has violated the terms of an amplification permit issued to or on behalf of the applicant;

7. The amplification will take place at a time, in a place or in a manner not in accordance with this chapter;

8. The amplification will be for the purpose of advertising goods, property, services, or entertainment, the primary purpose of which advertising is the making of a profit for a business;

9. The amplification will take place in the downtown government/business area for more than thirty minutes for every two hours of time between the hours of eight a.m. and five p.m., Monday through Friday, except legal holidays;

10. The amplification will require the use of a portion of San Jacinto Plaza other than the stage, or be within a city parking lot, the civic center plaza other than the patio area on the westerly side of city hall, on the sidewalks abutting the zoo, or at a location directed, focused or targeted at a hospital, a particular residence, or a facility for the performing arts or motion pictures during such times as events are taking place; or

11. The sound emanating from the sound amplifying devices:

a. Will be of such volume or duration and will occur at such time and place that it will unreasonably interfere with the safe and orderly movement of traffic or pedestrians;

b. Will cause such noise as to unreasonably discomfort persons of ordinary sensibilities living or working nearby;

c. Will be or is expected to be at a decibel level not permitted under the city's noise ordinance, Chapter 9.40 of this code;

d. Is primarily for the purpose of advertising goods, property, services, or entertainment, the primary purpose of which advertising is the making of a profit for a business; or

e. Will be audible within residential real property or at an institution, business or facility with sleeping facilities between the hours of ten p.m. and seven a.m. (Ord. 16318 § 4, 2006)

13.28.050 Approval or denial of application.

A. The permit official shall approve or deny an application within three business days of receipt in accordance with the standards set forth in this chapter. A notice of denial shall clearly set forth the grounds upon which the permit was denied and, where feasible, shall contain a proposal for measures by which the applicant may cure any defects in the application or otherwise procure a permit.

B. A permit, when issued, shall state the number of and sound amplifying capacity of the sound amplifying devices permitted, and the place, date and hours during which their use is permitted, provided however, that the issuance of a permit does not authorize the use of the sound amplifying devices in violation of the city's noise ordinance.

C. A permit, when issued for San Jacinto Plaza, shall restrict the use of sound amplifying devices to the stage located in the plaza and the permit shall state such restriction.

D. Where an application will be denied because the proposed use of amplification would conflict with another event that has or will be approved, the permit official may propose and issue an alternative permit for an alternative place, if available for the same time, or an alternative time, if available for the same place.

E. Where the applicant proposes to use amplification during hours not permitted under this chapter or Chapter 9.40 of this code, the permit official may unilaterally adjust the hours to the times permitted under this chapter and issue the permit accordingly.

F. Nothing in this chapter shall authorize the permit official to deny a permit based upon political, social, or religious grounds or reasons, or based upon the content of the views expressed.

G. The permit official may attach reasonable conditions to any permit approval as may be appropriate within the spirit and intent of this chapter. (Ord. 16318 § 5, 2006)

13.28.060 Waiver of fee.

A. If the applicant is indigent and unable to pay the application fee required under this chapter or the fee for the stage rental at the San Jacinto Plaza provided for in Chapter 13.24 of this code when the request is for the use of amplification at the San Jacinto Plaza, the fee shall be waived provided the applicant submits a sworn affidavit containing the following information:

1. A statement that the applicant and the group or organization on whose behalf the application is made, if applicable, is indigent and unable to pay the full amount of the permit fee;

2. Information about the financial status of the applicant and, if applicable, the group or organization on whose behalf the application is made and the nature of the existence of such a group or organization;

3. If an organization, a statement that the organization has made diligent efforts to raise money to pay the fee but have been unable to raise the funds; and

4. Any other information and documentation that the permit official determines is necessary to discern the financial status of the applicant or the group or the applicant's or organization's ability or efforts to raise funds to pay the fees.

B. If the applicant demonstrates through his affidavit or other submissions that he, and if applicable, the group or organization is indigent and unable to pay the application fee, the permit official shall waive the fee. (Ord. 16318 § 6, 2006)

13.28.070 Appeals.

A. An applicant may appeal the denial of an application or the denial of a waiver of the fees in writing within ten days after notice of the denial has been received by submitting a written request to the permit official. Within five business days, or such longer period of time agreed to by the applicant, the appeals official shall hold a hearing on whether to issue the permit or uphold the denial or to waive the fees or uphold the denial. The applicant shall have the right to present evidence at said hearing and to question appropriate city officials. The decision to issue the permit or waive the fees or to uphold the denial shall be based solely on the approval criteria set forth in this chapter. The appeals official shall render a decision on the appeal within five business days after the date of the hearing. In the event that the purpose of the proposed event is a spontaneous response to a current event, or where other good and compelling causes are shown, the appeals official shall reasonably attempt to conduct the hearing and render a decision on the appeal as expeditiously as is practicable.

B. Except as provided in subsections D and E, the decision of the appeals official is subject to review by the city council. Prior to the filing of any petition for declaratory judgment or other judicial determination pursuant to subsection C, the applicant shall appeal the decision of the appeals official to the city council. The applicant shall submit a written appeal request to the permit official, who shall forward the request for placement on the agenda of the next available regular city council meeting in compliance with all ordinances and statutes relating to the placement of items on the council agenda and the posting of the agenda. The decision to issue the permit or uphold the denial shall be based solely on the approval criteria set forth in this chapter.

C. The decision of the city council is subject to review in the district courts of El Paso County. Any petition for a declaratory judgment or other judicial determination as to whether the permit should be granted shall be filed with the clerk of district court within thirty days after the applicant has received notice of the decision. The city shall transmit the record to the court no later than five business days after filing its answer. The city shall in all matters before the court, seek prompt judicial action and promptly file and respond to all pleadings, discovery and other matters before the court.

D. The decision of the appeals official to waive the fees or to uphold the denial of a request for waiver of fees is final.

E. The decision of the permit official to refuse to accept a late application is not appealable. (Ord. 16318 § 7, 2006)

13.28.080 Violation—Penalty.

A. A person who uses a sound amplification device on a street, sidewalk, city park or other place held by the city for public use, without a permit for such use having been issued shall be deemed guilty of a misdemeanor and shall be punished as provided in Sections 1.08.010 through 1.08.030 of this code.

B. A person to whom a permit has been issued who intentionally violates the terms of the permit, or knowingly permits others to use sound amplifying devices in violation of the terms of the permit, shall be deemed guilty of a misdemeanor and shall be punished as provided in Sections 1.08.010 through l.08.030 of this code. (Ord. 16318 § 8, 2006)

Chapter 13.30

FILM-MAKING EVENTS

Sections:

13.30.010 Definitions.

13.30.020 Permit required.

13.30.030 Obedience to other laws required.

13.30.040 Permit application.

13.30.050 Permit consideration and issuance.

13.30.060 On-site location amendments and event date amendments.

13.30.070 Appeal from denial.

13.30.080 Duties of permittee.

13.30.090 Duties of participants.

13.30.100 Costs of city police and fire traffic control or oversight assistance.

13.30.110 Permit revocation.

13.30.120 Rental of city equipment.

13.30.130 Violation.

13.30.010 Definitions.

For purposes of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

"City equipment" means fire, police, street, machinery or other mechanical devices owned and used by the city.

"City facility" means any city-owned real property and any improvements made thereto, other than a facility for which rental or user fees have been authorized by any ordinance of the city.

"Commissioner" means the El Paso Film Commissioner.

"Film-making event" means any filming or photography session done for commercial purposes in connection with the making of a film, movie, television production, commercial or like endeavor, which requires the closing of the street or a portion thereof to normal vehicular traffic or the use of a city building or facility for a period of time not to exceed forty-eight hours.

"Location" means any street, alley, other city right-of-way or city facility proposed to be utilized for a film-making event.

"Non-public portion" means the portion of any city facility not designated for public use that is currently utilized by city staff for city business.

"Permittee" means the individual to whom a film-making permit has been issued.

"Predesignated department representative" means one of three employees within a given department authorized to review film-making permit applications. Such employees shall be the department head and two designees or three designees designated by a department head. The names of these individuals shall be provided to and kept on file with the El Paso Film Commission as a primary and secondary contact for each department requiring review of a film-making permit application. Each predesignated department representative shall be authorized to provide approval on behalf of the respective department.

"Right-of-way" means the entire area of a street or alley owned by the city in easement or by fee simple interest, including the driving surface of the street and any improved or unimproved abutting land not used for vehicle traffic.

"Street" means that portion of public right-of-way improved, designed or ordinarily used for vehicular traffic to include alleys when applicable.

"Traffic engineer" means the Traffic Engineer for the City of El Paso as defined in Section 12.04.190 or that person's designee. (Ord. 15885 § 2, 2004)
(Ord. No. 17321, § 1, 5-11-2010)

Section 13.30.020 Permit required.

A person or organization conducting a film-making event involving the proposed use of a city right-of-way or city facility shall apply for a permit for such use from the commissioner in accordance with this chapter. The traffic engineer is authorized to issue a permit for a period not to

exceed forty-eight consecutive hours to any person or organization in compliance with all requirements enumerated herein that has submitted an application. The traffic engineer may extend a film-making event permit for a period up to an additional forty-eight consecutive hours up on receipt of an application for extension of a film-making event permit. Any person requesting the use or closure of a right-of-way or a city facility for more than the forty-eight hours allowed by a film-making event permit or the extension thereof, or the use of a city facility when the city manager determines that the use would interfere with the conduct of work performed by the city or would inappropriately interfere with the public's use of city facilities available for such uses shall submit the request in accordance with the provisions in Chapter 15.08 of this Code, or obtain a lease or licensing agreement for the use of a city facility, as applicable. (Ord. 15885 § 3, 2004)
(Ord. No. 17321, § 2, 5-11-2010)

13.30.030 Obedience to other laws required.

This chapter shall not be construed to authorize the use of city facilities or rights-of-way for film-making events except in exact compliance with the laws of the state and other ordinances of the city applicable thereto, and persons who violate such other laws and ordinances shall be subject to the penalties provided in the other applicable laws and ordinances. (Ord. 15885 § 4, 2004)

13.30.040 Permit application.

An application for a film-making event permit must be made for each film-making event project (including but not limited to, a motion picture, commercial or documentary) on a form provided by the city and filed with the commissioner. Permits issued for a film-making event may include multiple locations. A location information form must be filed for each location proposed on the permit application. The traffic engineer's approval of locations may provide for the use of city rights-of-way or facilities for periods not to exceed forty-eight consecutive hours for each location or an extension thereof not to exceed and additional forty-eight hours. Request for use or closure of rights-of-way or a city facility for more than 48 consecutive hours or the extension thereof at a particular location shall require a special privilege permit or license as provided for in Chapter 15.08.

A. Application filing and review. An application shall be filed with the commissioner. No materially incomplete application shall be accepted. Upon receipt of a materially complete application, the commissioner shall timestamp and assign an application number to the project together with a separate location number for each proposed film-making event location. The applicant, or the commissioner on behalf of the applicant, shall then be responsible for obtaining a recommendation for each proposed location from all affected departments as outlined below:

1. The commissioner shall immediately forward the application to all the departments for which application review is required and shall additionally inform the director of the city development department and council members of any locations proposed within their district. The commissioner or applicant shall work with a pre-designated departmental representative to facilitate timely review. A pre-designated department representative for film-making events permitting shall provide a recommendation for approval, approval with modification, or denial for each proposed location along with applicable departmental comments. A pre-designated department representative shall make every effort to provide a recommendation within one business day.

2. Review of the application shall be required from the following departments: fire, police, Sun Metro, environmental services, and transportation. Other departments may be requested to review the application, as determined to be appropriate by the commissioner. Review by and approval by the director of aviation or designee shall be required for any proposed filming on City of El Paso airport property. The use of any police or fire facility shall require approval of the police or fire chief respectively. The traffic engineer shall ap-

prove all applications. The city manager or designee shall review and approve all applications for the use in or at non-public areas of city facilities. A pre-designated department representative shall provide written acknowledgment of receipt of the application. Any department required or requested to review the application shall make recommendation and provide comments by no later than the close of business on the third City Hall business day, after receipt of the application. Upon completion of distribution to all departments making a review, the applicant or commissioner, as the case may be, shall forward application and department recommendations to the traffic engineer. The traffic engineer shall begin his review on the city business day he receives the application and department recommendations and shall approve or deny the permit as required in Section 13.30.050.

B. Application content. The application for a film-making event permit shall set forth the following information:

1. The name, address and telephone number(s) of the person and organization seeking to conduct the event, as well as at least one alternate contact and the contact's telephone number;

2. The proposed title and description of the project;

3. The location or locations of the event;

4. Any additional information requested by the traffic engineer or commissioner reasonably necessary for a fair determination as to whether the permit should be issued.

5. All information required on the standard application form.

6. All supplementary documentation required.

7. Proposed location content. For each proposed location submitted as part of an application, the applicant shall provide the following information:

a. The physical address or description of the location, and rights-of-way affected by filming, proposed closures or intermittent traffic control and traffic control plan as required by Section 13.30.040.B.9.b.

b. The dates and times for set-up, filming and tear-down/clean-up.

c. The number of cast and crew expected to be present for set-up, filming and tear-down/clean-up.

d. The type of filming action expected to take place at the location.

8. Any additional information requested on the location information form, or by the traffic engineer or commissioner, reasonably necessary for a fair determination as to whether the location should be approved.

9. Required supplementary documentation. The applicant shall provide all documentation required under this subsection, unless otherwise stated herein, at the time an application is filed.

a. Applicant authorization. If the film-making event is designed to be conducted by, and on behalf of or for, any person other than the applicant, the applicant for such permit shall also file a communication in writing from the person proposing to hold the film-making event, authorizing the applicant to apply for the permit on his behalf.

b. Traffic control plan. For each proposed location on city right-of-way, a traffic control plan showing the proposed location of all barricades, signs and devices to be used for redirecting traffic around the closure area shall be provided by the applicant and shall comply with the following:

i. The traffic control plan shall provide for the closing of the street to include any intersections and rerouting of traffic, use of appropriate manned barricades, signs, and peace officers who have jurisdiction within the city, and shall also designate on the plan, the location of adequate and appropriate parking areas for filming crews and equipment.

ii. Such traffic control plan shall be in conformity with the most recent edition of the Texas Manual on Uniform Traffic Control Devices, shall be drawn on a map, and be timely submitted to the traffic engineer pursuant to the requirements set forth herein. In considering the appropriateness of a traffic control plan, the traffic engineer may approve with modification or otherwise incorpo-

rate any recommendations made by other predesignated departmental review representatives or department heads, which may require the use of peace officers.

iii. The traffic control plan shall provide that an unobstructed width of not less than 20 feet and an unobstructed vertical clearance of not less than 13 feet 6 inches for emergency vehicle access on all temporarily closed streets be retained. Fire hydrant locations shall be identified and no structure shall be located within 15 feet of any such fire hydrant.

iv. As part of a submitted traffic control plan, the permittee agrees to be responsible for the following:

a) Obtaining and placing barricades and signs in conformity with the traffic control plan.

b) Costs associated with the placement of such barricades and signs.

c) Costs for city police assistance, traffic control or otherwise, as provided in Section 13.30.100 of this Code if a determination is made by the traffic engineer that police traffic control assistance is also necessary.

d) To remove all barricades and signs and reopen streets immediately after the film-making event and subsequent tear-down/clean-up has ended.

e) To pay all parking meter fees for the time utilized.

f) Ensuring that access to property abutting an event location to be held on a street is not denied.

C. Certificate of insurance. A certificate of liability insurance naming the city as an additional insured. When applicable, the applicant must provide insurance pursuant to the following conditions and in the following amounts:

1. Worker's compensation with statutory limits;

2. Employer's Liability with minimum limits for bodily injury: a) by accident, two hundred fifty thousand dollars each accident, b) by disease, two hundred fifty thousand dollars for each employee with a policy aggregate of five hundred thousand dollars.

3. Business automobile liability insurance covering owned, hired, and nonowned vehicles, with a minimum combined bodily injury (including death) and property damage limit of five hundred thousand dollars per occurrence and in the aggregate. If filming involves stunts or extended car chases, then the minimum limit of coverage shall be three million dollars per occurrence and in the aggregate.

4. If the filming involves the use of aircraft then aircraft liability insurance for owned, hired, and nonowned aircraft with a minimum limit of five million dollars per occurrence and in the aggregate.

5. Commercial general liability insurance including, but not limited to, premises/operations, personal and advertising injury, products/completed operations, independent contractors and contractual liability with minimum combined bodily injury (including death) coverage of two hundred fifty thousand dollars per person and one million dollars in the aggregate, and property damage limits of one million dollars per occurrence and one million dollars in the aggregate. If filming in a city facility or premises, then, minimum limits of one million dollars per occurrence and two million dollars in the aggregate is required. If filming involves use of pyrotechnics, explosives or fireworks, then three million dollars per occurrence and three million dollars in the aggregate is required.

6. If alcoholic beverages are sold, served, or otherwise made available, then liquor liability insurance with minimum limits of one million dollars for each claim and in the aggregate.

7. With respect to the above required insurance, all insurance contracts and certificate(s) of insurance shall contain and state in writing, the following required provisions: a) name the city and its officers, employees, and elected representatives as additional insureds; b) state that coverage shall not be cancelled, non-renewed or mate-

rially changed except after thirty days' written notice by certified mail to: Film Commissioner, 1 Civic Center Plaza, El Paso, TX 79901; and c) waive subrogation against the City of El Paso, its officers, employees, for bodily injury (including death) property damage or any other loss.

a. Proof of notice to abutting owners and occupants. A statement from the applicant for a film-making event that every owner or occupant of real property abutting the boundaries of the area in which the film-making event will be conducted has been notified. Notification shall additionally be provided in writing in both English and Spanish to each common address abutting the location. In addition, a statement showing which owners or occupants have given consent for the film-making event, have not consented, or have not responded. Inability to obtain consent from at least seventy-five percent of the affected owners or occupants may be grounds for permit denial or revocation.

b. Application fees. An application fee for each proposed filming location shall be paid by the person applying for the permit at the time of the filing of the application. The application fee shall be established by the current budget resolution or other appropriate resolution passed by the city council. (Ord. 15919 § 1, 2004; Ord. 15885 § 5, 2004)

(Ord. No. 17321, § 3, 5-11-2010; Ord. No. 17391, § 12, 8-24-2010, eff. 9-1-2010; Ord. No. 17803, § 4, 6-5-2012, eff. 6-11-2012)

13.30.050 Permit consideration and issuance.

A. Traffic engineer review. The traffic engineer shall review an application and each proposed event location together with departmental recommendations and comments in order to ensure that the proposed film-making event complies with the provisions of this chapter and is an appropriate use under subsection B. The traffic engineer shall approve, approve with modifications consistent with departmental recommendations, or disapprove an application, or specific event location no later than two city business days after the date he receives the application and departmental recommendations. The traffic engineer's failure to issue an approval, approval with modifications, or disapproval of the application within the time period provided herein shall constitute a denial for purposes of section 13.30.070 of this code. The traffic engineer shall immediately notify the applicant of his determination, and if the application is denied, of the reasons therefore.

B. Application and event location considerations. The traffic engineer shall consider the following criteria, as may be applicable, to determine whether the applicant's proposals adequately and appropriately address public health, safety and welfare issues and whether police or other city personnel assistance shall be required as part of approval and can be provided:

1. The expected general flow of traffic upon the street or streets affected at the time proposed for the film-making event;

2. Whether any owners or occupants of real property abutting the boundaries of the area in which a film-making event will be conducted have not consented to the conduct of the event, and if objections have been filed, whether allowing the event will significantly impair the access to the affected property;

3. The existence, if any, of alternate routes for public transit vehicles and private vehicles;

4. Whether the event will significantly affect the city's ability to deliver police, fire and medical emergency services in the vicinity;

5. The extent, if any, of disruption to the use and enjoyment of residential, business, industrial and governmental facilities located in the vicinity of the proposed event.

6. Whether and to what extent police or other traffic control assistance reasonably will be required under this subsection, the traffic engineer, upon recommendation of the chief of police or his designees, shall consider such factors as the proposed size, proposed length, potential need to reroute traffic, close streets and control traffic at

intersections, anticipated amount of traffic to be controlled, number of intersections involved, as well as the time of day and date of the film-making event.

7. Prior similar events. The traffic engineer may review records, if any, from prior similar events conducted at or near the proposed site to determine whether there has been a history of traffic control problems, noise or other disruptions associated with the conduct of other events and whether the applicant presently demonstrates the steps to be taken to resolve any prior problems or disruptions.

C. Mandatory application denial. The traffic engineer shall not approve an application or specific proposed event location, as the case may be, when:

1. The applicant has not furnished all information and documentation required by Section 13.30.040.

2. The traffic control plan and submitted maps do not adequately address security and traffic control issues or does not otherwise adequately address the criteria and requirements of this section. However, the traffic engineer may approve a modification of the applicant's submittal when such modification adequately addresses security and traffic control issues.

3. The film-making event is proposed to be held on any state or federal highway or road and the appropriate governmental agency has not affirmatively authorized the proposed use in writing. However, the traffic engineer may approve a film-making permit application "subject to" approval from the appropriate state or federal governmental agency. In such event, the applicant is not authorized to conduct the film-making event until he receives the approval and provides a copy of the approval to the traffic engineer. Further, the traffic engineer is authorized to submit an application to any federal or state agency to obtain authorization for use of their rights-of-way on behalf of the applicant when such authorization is required and such agency requires that application only be filed by a governmental entity.

4. The applicant requests a use not permitted under this chapter.

5. The applicant fails to pay any outstanding fees assessed under this chapter for the application or has failed to pay any outstanding fees for any past event.

6. The police chief, fire chief, or their designees have determined that the conduct of the film-making event would pose a serious threat to the public health, safety or welfare.

7. The proposed use conflicts with a permit already granted and filed or with the terms of an ordinance granting a special privilege for the use of the street that has either been introduced or approved by the city council.

8. A specific location is proposed for use of more than 48 hours and a special privilege permit or license has not been issued.

9. The director of aviation for the city airport has not approved the specific event location on airport property.

10. Applicant has failed to meet all requirements of the Federal Aviation Administration for use of aircraft. However, the traffic engineer is authorized to approve subject to receipt of such requirements prior to the event time.

11. Applicant has failed to obtain required permits for the use of fire, pyrotechnics or explosives at his sole cost. However, the traffic engineer is authorized to approve subject to receipt of such required permits prior to the event time or may authorize the use of the location without the use of pyrotechnics or explosives.

12. Written approval from the city manager when use of a non-public portion of a city facility has not been obtained.

D. Permit modifications when abutting owners object. In the event that a permit is issued for any film-making event for which consent has not been given by an owner or occupant of any real property adjacent to the area of closure, the traffic engineer, when issuing the permit, may modify the time or impose additional requirements, such as requiring barricades for lawns or other properties, within the closure area that may assist with the

protection or enjoyment of or access to the property of those persons who have indicated their objection to the event.

E. Estimated costs assessed. At the time that the permit is issued, the traffic engineer shall provide the permittee with a copy of the city's estimate of any required costs assessed to the permittee under this chapter. The permit shall provide that the permittee acknowledges that such estimate is subject to change and promises to pay all amounts due including those in addition to the estimate provided.

F. Time to clean up. The traffic engineer shall designate in the permit the time period that the applicant shall have for all clean-up and site restoration required under this chapter.

G. Permittee's agreements in consideration of permit issuance. A permittee receiving a film-making event permit shall, at the time the permittee appears to receive the permit:

1. Agree in writing to reimburse the city for the cost of city personnel and equipment used to support the film-making activity, as determined by the traffic engineer.

2. Return any location utilized to its pre-event condition at no cost to the city.

3. Provide the names and cellular telephone numbers or pager numbers of one or more persons who will be at the scene and in charge of the scene during the film-making event.

H. The city manager, in approval of any event location utilizing city buildings or facilities not open to the public, may require additional consideration, restrictions, or conditions as necessary under the circumstances. (Ord. 15919 §§ 2, 3, 2004; Ord. 15885 § 6, 2004)
(Ord. No. 17321, § 4, 5-11-2010)

Section 13.30.060 On-site location amendments and event date amendments.

A. On-site location amendments. The traffic engineer may approve a request to expand or otherwise modify an approved location at the time of the event. The traffic engineer shall only be required to consult with and obtain the approval of departments that made recommendations on the permit application and the primary police officer assigned to the event location prior to approval of such modification. The traffic engineer may deny the requested expansion of the location or modify the expansion area based on traffic and pedestrian control, noise and access considerations.

B. Event date amendments. The traffic engineer may approve a request to change the event date for an approved location. The traffic engineer shall consult with the predesignated police department and obtain their consent prior to approval. The traffic engineer shall immediately notify all departments initially responsible for review of such change immediately upon approval. (Ord. 15885 § 7, 2004)
(Ord. No. 17321, § 5, 5-11-2010)

Sec. 13.30.070 Review of denial of permit.

If the traffic engineer denies an application for a permit, the action is final unless, within en consecutive calendar days following the date of receiving notice of the action, the applicant files with the traffic engineer, a written request that the city council issue the permit. The city council shall make the final determination on the matter. The city council shall, as soon as practical, hear such request after reasonable notice to the applicant. The applicant shall have an opportunity to present information on his behalf that supports the applicant's needs to close or use city streets and/or facilities for the filmmaking event and to show that the event is permitted under this chapter and that the application and submitted documentation comport to the requirements of this chapter. If the city council fails to render a decision within thirty days after the date the request is filed with the traffic engineer the request is denied, unless city council, by specific motion, extends the time period for the consideration of the request. (Ord. 15885 § 8, 2004)
(Ord. No. 17321, § 6, 5-11-2010)

Sec. 13.30.080 Duties of permittee.

A permittee shall comply with all permit directions and conditions, with all applicable laws

and ordinances, and obtain all other city permits that may be required in conjunction with the film-making event.

A. The person conducting the film-making event shall carry the permit upon his person during the conduct of the film-making event.

B. The permittee shall comply with all obligations imposed under Section 13.30.040 regarding the implementation of the security and traffic control plan and shall not permit a film-making event to proceed or continue until such time as the applicable traffic control plan or method is set up and functioning.

C. The permittee shall, immediately upon the conclusion of the film-making event, clean and remove all litter and debris left on the streets, sidewalks and other public rights-of-way by participants, and with the permission of the property owner, all litter and debris left on private property by event participants.

D. In the event that the permittee fails to clean and remove all such litter and debris on the streets, sidewalks and other city right-of-ways within four hours of the end of the film-making event, or other time period as otherwise determined by the traffic engineer as part of application approval, the city may perform such cleaning and the permittee shall be responsible for the costs of the city cleaning. Payment of any city cleaning costs shall be due and payable upon receipt of the bill from the city comptroller. (Ord. 15885 § 9, 2004)
(Ord. No. 17321, § 7, 5-11-2010)

13.30.090 Duties of participants.

A. During the course of a film-making event, each participant who is operating a vehicle of any type shall obey the directions of any peace officer who is providing traffic control. All participants shall be licensed to drive the vehicle they are operating.

B. Each participant shall remain responsible for the payment of any bridge-crossing tolls, should the location include the use of a toll area.

C. All participants at a location that is an area under the control, direction or supervision of the United States Bureau of Customs and Border Protection shall comply with all laws, regulations and other requirements pertaining to the entry into and exit from such area. (Ord. 15885 § 10, 2004)

13.30.100 Costs of city police and fire traffic control or oversight assistance.

A. Permittee shall be responsible for all costs of city police and fire traffic control or oversight assistance including additional costs associated with delays or modifications to submitted applications.

B. Payment of the costs shall be due and payable upon receipt of the bill from the city comptroller. (Ord. 15885 § 11, 2004)

13.30.110 Permit revocation.

A. The traffic engineer shall revoke a film-making event permit if:

1. The permittee fails to comply with or the film-making event is in violation of any provision of the permit, a city ordinance, or other applicable law, or

2. The police chief, fire chief, traffic engineer or their designees have determined that the conduct of the special event is posing a serious threat to the public health, safety or welfare.

B. Applicant herein is obligated to immediately restore and vacate the location immediately upon receipt of permit revocation. (Ord. 15885 § 12, 2004)
(Ord. No. 17321, § 8, 5-11-2010)

13.30.120 Rental of city equipment.

A film-making event applicant requesting the temporary rental of city equipment shall submit written request to the traffic engineer. The traffic engineer shall immediately forward the request to a predesignated departmental representative within the department responsible for such equipment. The predesignated representative shall recommend approval, approval with modifications, or

denial of the request within three City Hall business days following the date of receipt of the request. If the request is approved, the traffic engineer shall forward the recommendation for approval or approval with modifications and proposed rental agreement to the city manager or designee for approval and signature. Such rental agreement shall include all terms agreed to by the traffic engineer and deemed necessary to protect the city's interest, including but not limited to insurance-coverage and reimbursement for any damage or destruction of such equipment. (Ord. 15885 § 13, 2004)
(Ord. No. 17321, § 9, 5-11-2010)

Section 13.30.130 Violation

A. A person commits an offense if he promotes or sponsors a film-making event for which a permit has not been issued or has been revoked.

B. A person to whom a person has been issued commits an offense if he intentionally violates the terms of the permit.

C. A person participating in a film-making event for which a permit has been issued commits an offense if he intentionally violates the terms of the permit.

D. A person commits an offense if he participates in a film-making event for which a permit is required without a permit having been issued, or if issued, subsequently revoked. (Ord. 15885 § 14, 2004)
(Ord. No. 17321, § 10, 5-11-2010)

Chapter 13.32

TEMPORARY EVENTS*

Sections:

13.32.010 Definitions.

13.32.020 Permit required.

13.32.030 Permit application.

13.32.040 Permitting criteria and process.

13.32.050 Costs and fees.

13.32.060 Approval or denial of application.

13.32.070 Appeals.

13.32.080 Duties of permittee.

13.32.090 Violation—Penalty.

13.32.010 Definitions.

For purposes of this chapter, the following words and phrases shall have the meanings respectively ascribed to them by this section:

"Appeals official" means the city manager or a deputy city manager as designated by the city manager.

"Noise disturbance" means the causation or existence of noise of such volume or duration as to unreasonably interfere with the safe and orderly movement of traffic or pedestrians or so as to unreasonably discomfort persons of ordinary sensibilities living nearby, or noise at a decibel level not permitted under the city's noise ordinance, Chapter 9.40 of this code.

"Permit official" means the person or persons designated by the city manager as being responsible for issuing permits under this article. The city manager may designate different persons as the permit official for different categories of permitted events and for different facilities or locations.

"Street" means that portion of public right-of-way improved, designed or ordinarily used for vehicular traffic.

"Temporary event" means any bazaar, block party, street dance, sidewalk sale, show exhibition, local special event, festival, celebration or any similar occurrence to last twenty-four hours or less that will be conducted on a street or alley within an area not exceeding one city block or one intersection, at least two-thirds of which area is residentially zoned and which is sponsored solely by the owners, residents or tenants in the area or their organization, or an event to last twenty hours or less that will be conducted on all or a portion of scenic drive. (Ord. 16315 § 1, 2006)

** **Prior history:** Prior code § 15-25 as amended by Ords. 9177, 10364, 11783, 12370, 12501, 12910, 12949, 13152, 14279, 15261.

13.32.020 Permit required.

No temporary event upon a residential public street or alley is permitted unless a permit allowing such activity has been obtained pursuant to this chapter. (Ord. 16315 § 2, 2006)

13.32.030 Permit application.

A. Filing Application. An application for a temporary event permit shall be made in writing on a form prescribed by the permit official at least thirty days before the commencement of the event.

B. Late Application. Notwithstanding the preceding subsection, the permit official may consider an application that is filed more than seven but less than thirty days before the commencement of the proposed event where the purpose of such event is a spontaneous response to a current event or where other good and compelling causes are shown, and the short notice does not unreasonably hinder or prejudice the city in preparing for the temporary event.

C. Application Form.

1. The application must contain the following:

a. The name, address, and telephone number for the person in charge of the proposed event and the name of the organization with which that person is affiliated or on whose behalf the person is applying (collectively "applicant");

b. The name, address, and telephone number for an individual who shall be designated as the responsible planner and on-site manager for the event;

c. The date, time and place of the proposed event, including the time that the event will begin and end;

d. The anticipated number of persons, and the basis on which this estimate is made;

e. The availability of parking, restroom facilities and trash receptacles in the vicinity where the event will be conducted to accommodate the number of persons that are expected to attend the event; and

f. Such other information, attachments, and submissions that are requested on the application form.

2. If the applicant desires to use amplification in connection with the temporary event, the applicant shall so indicate on the application form and provide the information requested on the application form.

3. The application must be signed and be accompanied by a nonrefundable payment of the established fee.

4. Within two business days after the receipt of the application or the documentation required under subsection D., whichever occurs later, the permit official may reject any application or other documentation that does not contain an accurate and legible depiction of the location of the event and require the applicant to resubmit a corrected application or documentation with an accurate and legible depiction of the location. The resubmission is subject to all of the deadlines set forth in this section.

D. Documentation Required. The applicant shall provide all documentation required under this subsection no later than two business days after the day the application is filed.

1. A traffic control plan showing the location of all barricades, signs and devices to be used for redirecting traffic around the closure area. The applicant may request the assistance of the permit official or other designated city employees with the development of the traffic control plan.

a. The applicant shall develop and submit a traffic control plan for closing the street or alley to include any intersections and rerouting the traffic, using appropriate manned barricades and signs or peace officers other than El Paso police officers authorized by law to direct traffic on city streets, and shall also designate on the plan, the location of adequate and appropriate parking areas for those persons attending the event.

b. Such traffic control plan shall be in conformity with the most recent edition of the Texas Manual on Uniform Traffic Control Devices and shall be in writing, be drawn on a map, and be timely submitted to the permit official pursuant to the requirement set forth herein. In considering the appropriateness of a traffic control plan, the permit official may incorporate any recommendations made by the chief of police, the traffic engineer, or their designees into the plan, which may include the use of some El Paso police officers.

c. The function must be conducted in such a manner that at least one lane of the street to be utilized will be capable of being opened at all times for access by persons requiring emergency access to properties abutting the function and by police, fire and other emergency vehicles, and the traffic control plan shall depict the location of this lane.

2. A map of the area to be closed or used showing all fire lanes, booths, stages, portable toilets, trash containers, any other important features for the event, and any other materials the applicant intends to place within the area.

3. A notice of proposed closure on a form prescribed by the permit official containing the name and address of each owner or occupant of real property abutting the boundaries of the area in which a temporary event will be conducted and a signed statement from one individual representing or constituting the owner or occupant of each property stating whether they consent to or object to the proposed event. A neighborhood association may state its support or opposition through the signature of any officer so authorized by the neighborhood association. (Ord. 16315 § 3, 2006) (Ord. No. 17983, § 2, 4-2-2013)

13.32.040 Permitting criteria and process.

An application may be denied for any of the following reasons:

1. The application is not fully completed and executed or all information and documentation required by Section 13.32.030 has not been timely submitted;

2. The applicant has not tendered the required application fee or has not tendered other required user fees within times prescribed;

3. The application contains a material falsehood or misrepresentation;

4. The applicant is legally incompetent to contract or to sue and be sued;

5. The applicant has on prior occasions made material misrepresentations regarding the nature or scope of an event;

6. The applicant has previously permitted a violation or has violated the terms of a temporary event permit issued to or on behalf of the applicant;

7. The applicant has on prior occasions damaged city property and has not paid in full for such damage;

8. A fully executed prior application for a use at the same time and place has been received, and a permit has been or will be granted to a prior applicant authorizing uses or activities which do not reasonably permit multiple simultaneous events;

9. The applicant requests a use not permitted under this chapter;

10. The proposed event would present an unreasonable danger to the public health or safety;

11. The traffic control plan and submitted maps does not adequately address security and traffic control issues or does not otherwise adequately address the criteria and requirements of this chapter including but not limited to significantly affecting the city's ability to deliver police, fire and medical emergency services to the function site and in the vicinity of the function site;

12. Closing a street or alley for a temporary event would deny or restrict access to adjacent properties and ten percent or more of the affected owners or occupants have objected to the conduct of the event. The calculation under this subsection shall be based on the number of different properties or occupied units, not the total number of individuals occupying or using all properties;

13. Appropriate alternate routes for public transit vehicles and private vehicles are not available;

14. Inadequate arrangements have been made for anticipated parking needs and for restroom facilities and trash receptacles; or

15. The event will include amplified or nonamplified music or other sound sources that may be expected to create a noise disturbance which cannot be appropriately abated or controlled by the applicant. (Ord. 16315 § 4, 2006)

13.32.050 Costs and fees.

A. The applicant shall be responsible for obtaining and placing barricades and signs in conformity with the traffic control plan, for the costs associated with the placement of such barricades and signs, and for any costs for city police traffic control assistance, including the hiring and paying the cost of law enforcement officers, vehicles and equipment that are used for traffic control. When calculating the costs for the police department's portion of a traffic control plan under this chapter, the police department shall prepare an estimated cost for the event and shall furnish the estimate to the permit official and the applicant. A representative of the police department shall, when necessary confer with the applicant and explain the estimated costs.

B. The police department shall prepare and maintain a schedule of fees, based on its actual costs including overtime costs as appropriate, for its law enforcement officers, vehicles and equipment that are used for event traffic control. The schedule shall be on file with the permit official and the city comptroller and shall be made available to all applicants.

C. If the traffic control will be provided by peace officers other than El Paso Police Officers,

the permittee shall be responsible for any and all costs associated with the hiring and use of those peace officers.

D. The applicant shall be responsible for all costs of litter and debris removal in accordance with Section 13.32.080 of this chapter.

E. The applicant shall pay the established fee upon submittal of the application for permit. Prior to the issuance of the permit, the applicant shall pay the full amount of all costs for services, permits and licenses that will be provided by the city. If the applicant cancels the event and notifies the permit official within three hours or less of the commencement of the event, the application fee will not be refunded. (Ord. 16315 § 5, 2006)
(Ord. No. 17983, § 3, 4-2-2013)

13.32.060 Approval or denial of application.

A. The permit official shall approve or deny an application within twenty days of receipt in accordance with the standards set forth in this chapter. A notice of denial shall clearly set forth the grounds upon which the permit was denied and, where feasible, shall contain a proposal for measures by which the applicant may cure any defects in the application or otherwise procure a permit.

B. If the applicant has requested the issuance of an amplification permit at the time of the submission of the application for a temporary event permit, the permit official shall proceed to make a separate determination regarding the issuance of the amplification permit and may issue an amplification permit in conjunction with the temporary event permit as permitted by and in accordance with the requirements established under Chapter 13.28 of this code.

C. In the event that a permit is issued for any temporary event for which any objection has been filed by an owner or occupant of any real property adjacent to the area of closure, the permit official, when issuing the permit, may modify the time for the event to a period not to exceed twelve hours, restrict or modify the use of amplification, if any, or impose additional requirements such as requiring barricades for lawns or other properties within the closure area that may assist with the protection or enjoyment of or access to the property of those persons who have indicated their objection to the event.

D. The permit official may attach reasonable conditions to any permit approval as may be appropriate within the spirit and intent of this chapter. (Ord. 16315 § 6, 2006)

13.32.070 Appeals.

A. An applicant may appeal the denial of an application in writing within ten days after notice of the denial has been received by submitting a written request to the permit official. Within five business days, or such longer period of time agreed to by the applicant, the appeals official shall hold a hearing on whether to issue the permit or uphold the denial. The applicant shall have the right to present evidence at said hearing and to question appropriate city officials. The decision to issue or uphold the denial shall be based solely on the approval criteria set forth in this chapter. The appeals official shall render a decision on the appeal within five business days after the date of the hearing. In the event that the purpose of the proposed event is a spontaneous response to a current event, or where other good and compelling causes are shown, the appeals official shall reasonably attempt to conduct the hearing and render a decision on the appeal as expeditiously as is practicable.

B. Except as provided in subsections D and E, the decision of the appeals official is subject to review by the city council. Prior to the filing of any petition for declaratory judgment or other judicial determination pursuant to subsection C, the applicant shall appeal the decision of the appeals official to the city council. The applicant shall submit a written appeal request to the permit official, who shall forward the request for placement on the agenda of the next available regular city council meeting in compliance with all ordinances and statutes relating to the placement of items on the council agenda and the posting of the

agenda. The decision to issue or uphold the denial shall be based solely on the approval criteria set forth in this chapter.

C. The decision of the city council is subject to review in the district courts of El Paso County. Any petition for a declaratory judgment or other judicial determination as to whether the permit should be granted shall be filed with the clerk of district court within thirty days after the applicant has received notice of the decision. The city shall transmit the record to the court no later than five business days after filing its answer. The city shall in all matters before the court, seek prompt judicial action and promptly file and respond to all pleadings, discovery and other matters before the court.

D. The decision of the permit official to refuse to accept a late application is not appealable.

E. The decision as to the amount of traffic control or clean up necessary in conjunction with an event, and the costs resulting therefrom, are not appealable, provided that the costs of traffic control are based on schedule of fees required in Section 13.32.050(B) of this chapter. (Ord. 16315 § 7, 2006)

13.32.080 Duties of permittee.

A. The permittee shall comply with all permit requirements and conditions and with all applicable laws and ordinances, including but not limited to the city's noise ordinance, Chapter 9.40 of this code.

B. The person conducting the event shall carry the permit upon his person during the conduct of the event.

C. The permittee shall comply with all aspects of the approved traffic control plan.

D. All barricades and signs must be removed and streets must be reopened immediately after the event and subsequent street cleaning has ended.

E. The permittee shall, immediately upon the conclusion of the event, clean and remove all litter and debris left on the streets, sidewalks, alleys and other public rights-of-way by participants at the event, and with the permission of and at the request of an adjacent property owner, all litter and debris left on private property by event participants.

F. In the event that the permittee fails to clean and remove all such litter and debris on the streets, sidewalks, alleys and other public rights-of-way within four hours of the end of the street function, the city may perform such cleaning and the permittee shall be responsible for the costs of the city cleaning and shall reimburse the city for such costs.

G. Payment of all costs for costs of providing on-duty law enforcement officers and any other traffic control costs, less the amount of deposit made under Section 13.32.050(E) of this chapter, shall be due and payable within ten days of receipt of the bill from the city comptroller.

H. Payment of any city cleaning costs shall be due and payable upon receipt of the bill from the city comptroller. (Ord. 16315 § 8, 2006)

13.32.090 Violation—Penalty.

A. A person who promotes or sponsors a temporary event for which a permit is required without a permit having been issued shall, upon conviction, be guilty of a misdemeanor and punished as provided in Sections 1.08.010 through 1.08.030 of this code.

B. A person to whom a permit has been issued who intentionally violates the terms of the permit or who violates any of the duties set forth in Section 13.32.080 shall, upon conviction, be guilty of a misdemeanor and punished as provided in Sections 1.08.010 through 1.08.030 of this code.

C. A person participating in a temporary event for which a permit has been issued who intentionally violates the terms of the permit shall, upon conviction, be guilty of a misdemeanor and punished as provided in Sections 1.08.010 through 1.08.030 of this code.

D. A person who participates in a temporary event for which a permit is required without a permit having been issued shall, upon conviction,

be guilty of a misdemeanor and punished as provided in Sections 1.08.010 through 1.08.030 of this code.

E. This chapter shall not be construed to authorize the closure and use of the public streets or alleys except in strict compliance with the laws of the state and other ordinances of the city applicable thereto, and persons who violate such other laws and ordinances shall be punished according to the provisions of the other applicable laws and ordinances.

F. Nothing in this chapter prohibits a law enforcement officer or firefighter from issuing a command to move or disperse in accordance with Texas Penal Code Section 42.04 in the event of a riot, unreasonable noise or obstructing passageway. (Ord. 16315 § 9, 2006)

Chapter 13.34

PICKETING

Sections:

13.34.010 Definitions.

13.34.020 Notice of intent to picket—Exceptions.

13.34.030 Reserved.

13.34.040 Picketing regulations.

13.34.050 Reserved.

13.34.010 Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

"Median" means a strip that separates the opposing flows of traffic on a roadway, with level or depressed areas within the median.

"Picket or picketing" means to make a public display or demonstration by one or more persons of sentiment for or against a person or cause, including protesting which may include the distribution of leaflets or handbills, the display of signs and any oral communication or speech, which may involve an effort to persuade or influence, including all expressive and symbolic conduct, whether active or passive.

"Roadway" means the paved area of a street between the face of the curb lines, including the driving and parking lanes, which is provided for the movement of vehicles.

"Sidewalk" means that portion of the public right-of-way which is designated for the use and movement of pedestrians.

"Street" means that portion of public right-of-way improved, designed or ordinarily used for vehicular traffic. (Ord. 16316 § 2, 2006)

13.34.020 Notice of intent to picket—Exceptions.

A. It shall not be an offense to picket on a city street, sidewalk, or other public way, or in a city park, without having provided notice.

B. The organizer of a picket that the organizer knows, or should reasonably know, will be attended by a group of fifty or more individuals are encouraged to give notice of intent to picket to the chief of police or his designee at least seventy-two hours before the beginning of the picket. The notice of intent to picket shall include the following information:

1. The name, address and contact telephone number for the organizer of the picket;

2. The name, address and contact telephone number of the person giving notice of intent to picket if different from the organizer;

3. The name of the organization or group sponsoring the picket;

4. The location where the picket is to take place;

5. The date and time the picket will begin and end; and

6. The anticipated number of participants, and the basis on which this estimate is made.

C. The chief of police shall develop a procedure by which individuals can give notice of intent to picket under this chapter, to include instructions as to where such notices are filed. Such policy shall be on file at police department headquarters and at the offices of the city clerk and the permit official designated to issue permits under Chapters 13.28, 13.32 and 13.36 of this Code, and shall be made available to the public.

D. A notice of intent to picket is not required to be given for picketing by a group of less than fifty individuals.

E. A notice of intent to picket is not required for a spontaneous event for which an attendee or event organizer cannot provide the level of advance notice required by this chapter, such as an event occasioned by recent news or current affairs, that is conducted solely on city right-of-way or parkland. A spontaneous event is subject to other laws. To help ensure public safety, an organizer of a spontaneous event is not required to, but is encouraged to, notify the El Paso Police Department of the date, time, place, and an estimate of the approximate number of persons who will be

participating. This section is applicable regardless of the number of individuals in attendance. (Ord. 16316 § 3, 2006)
(Ord. No. 019409, § 1, 12-6-2022)

13.34.030 Reserved.

Editor's note—Ord. No. 019409, § 2, adopted Dec. 6, 2022, repealed § 13.34.030, which pertained to receipt of notification and derived from Ord. No. 16316, § 3, adopted 2006.

13.34.040 Picketing regulations.

A. Picketing may be conducted on public sidewalks, any city park, or other city-owned areas normally used or reserved for pedestrian movement, including easements and rights-of-way, and shall not be conducted on the portion of a public roadway.

B. Picketing shall not disrupt, block, obstruct or interfere with pedestrian or vehicular traffic or the free passage of pedestrian or vehicular traffic into any driveway, pedestrian entrance, or other access to buildings, which abut the public sidewalks.

C. If more than one group of picketers desire to picket at the same time at or near the same location, law enforcement officers may, without regard to the purpose or content of the message, assign each group a place to picket in order to preserve the public peace. Members of a group shall not enter an area assigned to another group. Priority of location shall be based upon which group of picketers arrived first.

D. Spectators of pickets shall not physically interfere with individuals engaged in picketing. Picketers and spectators of pickets shall not speak fighting words or threats that would tend to provoke a reasonable person to a breach of the peace.

E. Picketers and picketing shall be subject to all applicable local, state and federal laws including, but not limited to the city's noise ordinance, amplification ordinance, and when crossing or using any roadway, picketers shall comply with all laws applicable to pedestrians.

F. Nothing in this chapter prohibits a law enforcement officer or firefighter from issuing a command to move or disperse in accordance with Texas Penal Code Section 42.04 in the event of a riot, unreasonable noise or obstructing passageway. (Ord. 16316 § 5, 2006)

13.34.050 Reserved.

Editor's note—Ord. No. 019409, § 3, adopted Dec. 6, 2022, repealed § 13.34.050, which pertained to violation and derived from Ord. No. 16316, § 6, adopted 2006.

Chapter 13.36

PARADES AND PUBLIC ASSEMBLIES

Sections:

13.36.010 Definitions.

13.36.020 Permit required.

13.36.030 Permit application.

13.36.040 Permitting criteria and process.

13.36.050 Costs and fees.

13.36.060 Approval or denial of application.

13.36.070 Appeals.

13.36.080 Duties of permittee.

13.36.090 Duties of participants.

13.36.100 Violation—Penalty.

13.36.010 Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

"Appeals official" means the city manager or a deputy city manager as designated by the city manager.

"Arterial" means a public right-of-way designated on the city's official major thoroughfare plan that has a minimum right-of-way width of seventy feet for the purpose of carrying more traffic volume than a local street.

"Event" means the collective reference to a parade, demonstration or public assembly.

"Parade" means an athletic event, march, pageant, procession or other similar activity consisting of persons, animals, vehicles or things, or any combination thereof, that disrupts the normal flow of traffic upon any public roadways or utilizes the appropriate areas within a city-controlled park. The length and route of a parade shall be as approved in accordance with the requirements of this chapter, provided however, a parade consisting solely of moving vehicles may not utilize more than six miles of city roadways, excluding any staging, pre-parade assembly or disbanding areas. A funeral procession is not a parade.

"Peak traffic hours" means between the hours of seven a.m. and nine a.m. and four p.m. and six p.m. on Monday through Friday, except legal holidays.

"Permit official" means the person or persons designated by the city manager as being responsible for issuing permits under this chapter. The city manager may designate different persons as the permit official for different categories of permitted events and for different facilities or locations.

"Roadway" means the paved area of a street between the face of the curb lines, including the driving and parking lanes, which is provided for the movement of vehicles.

"Sidewalk" means that portion of the public right-of-way which is designated for the use and movement of pedestrians.

"Street" means that portion of public right-of-way improved, designed or ordinarily used for vehicular traffic. (Ord. 16488 § 1, 2006; Ord. 16317 § 2, 2006)
(Ord. No. 17338, § 10, 6-1-2010; Ord. No. 019409, § 4, 12-6-2022

13.36.020 Permit required.

A. No parade is permitted unless a permit allowing such activity has been obtained pursuant to this chapter.

B. A permit is not required if the parade is a spontaneous event for which an attendee or event organizer cannot provide the level of advance notice required by this chapter, such as an event occasioned by recent news or current affairs. A spontaneous event is subject to other laws. To help ensure public safety, an organizer of a spontaneous event is not required to, but is encouraged to, notify the permit official and the El Paso Police Department of the date, time, place, and an estimate of the approximate number of persons who will be participating. (Ord. 16317 § 3, 2006)
(Ord. No. 019409, § 5, 12-6-2022)

13.36.030 Permit application.

A. Filing Application. An application for a parade or public assembly permit shall be made in

writing on a form prescribed by the permit official at least thirty days before the commencement of the event, but not more than one year in advance of the event.

B. Late Application. Notwithstanding the preceding subsection, the permit official may consider an application that is filed less than thirty days before the commencement of the proposed event where the purpose of such event is a spontaneous response to a current event of interest to the city as a whole or where filed more than seven days but less than thirty days where other good and compelling causes are shown, and the short notice does not unreasonably hinder or prejudice the city in preparing for the event.

C. Application Form.

1. The application must contain the following:

a. The name, address, and telephone number for the person in charge of the proposed event and the name of the organization with which that person is affiliated or on whose behalf the person is applying (collectively "applicant");

b. The name, address, and telephone number for an individual who shall be designated as the responsible planner and on-site manager for the event;

c. The date, time, place, and route of the proposed event, including the location and time that the event will begin to assemble and disband, and any requested roadway closings;

d. The anticipated number of persons and vehicles, and the basis on which this estimate is made;

e. A list of the number and type of animals that will be at the event;

f. Such other information, attachments, and submissions that are requested on the application form as reasonably necessary for a fair determination as to whether the permit should be issued; and

g. A notice to the applicant that if he will be due a refund from the city in an amount over twenty-five dollars, the refund will be automatically processed and sent to the applicant, but if the amount is twenty-five dollars or less, the applicant must submit a request to receive such refund within ninety days after the conclusion of the event before the refund will be processed and paid.

2. If the event is designed to be held by, and on behalf of or for, any person other than the applicant, the applicant shall also file a communication in writing from the person proposing to hold the event authorizing the applicant to apply for the permit on his behalf.

3. If the applicant desires to use amplification in connection with the event, the applicant shall so indicate on the application form and provide the information requested on the application form.

4. The application must be signed and be accompanied by payment of a nonrefundable application fee as established in the annual budget resolution adopted by city council.

5. Within two business days after the receipt of the application, the permit official may reject any application that does not contain an accurate and legible depiction of the route and require the applicant to resubmit a corrected application with an accurate and legible depiction of the route. The resubmission is subject to the application deadlines set forth in this section.

6. Any person submitting a late application that is accepted pursuant to subsection B shall be charged an additional fee as established in the annual budget resolution adopted by city council.

7. For any application submitted by the city for a city created event to be conducted by the city, the city manager or her designee is authorized to determine the appropriate funding sources to cover the city's costs for all services under this chapter and make any necessary budget transfers in lieu of payment of the fees set forth herein. (Ord. 16987 § 1, 2008; Ord. 16317 § 4, 2006)
(Ord. No. 19077, §§ 2, 3, 8-4-2020)

13.36.040 Permitting criteria and process.

A. An application may be denied for any of the following reasons:

1. The application is not fully completed and executed;

2. The applicant has not tendered the required application fee or has not tendered other required user fees or costs within times prescribed;

3. The application contains a material falsehood or misrepresentation;

4. The applicant is legally incompetent to contract or to sue and be sued;

5. The applicant has on prior occasions made material misrepresentations regarding the nature or scope of an event;

6. The applicant has previously permitted a violation or has violated the terms of a parade or public assembly permit issued to or on behalf of the applicant;

7. The applicant has on prior occasions damaged city property and has not paid in full for such damage;

8. A fully executed prior application for the same time and place has been received, and a permit has been or will be granted to a prior applicant authorizing uses or activities which do not reasonably permit multiple simultaneous events;

9. The applicant requests a use not permitted under this chapter;

10. The proposed event would conflict with previously planned programs organized, conducted, or sponsored by the city and previously scheduled at or near the same time and place;

11. The proposed event would present an unreasonable danger to the public health or safety;

12. The proposed event would substantially or unnecessarily interfere with traffic;

13. The proposed route for an event consisting solely of moving vehicles exceeds six miles in length;

14. The event would likely interfere with the movement of emergency equipment and police protection in areas contiguous or in the vicinity of the event;

15. There would not, at the time of the event, be sufficient law enforcement and traffic control officers to adequately protect participants and non-participants from traffic related hazards in light of the other demands for police protection at the time of the proposed event;

16. The proposed event would take place on an arterial roadway during peak traffic hours;

17. The proposed event would take place at a location that cannot reasonably accommodate all of the expected participants;

18. The proposed event would take place on a state or federal highway or road and the appropriate governmental agency has not authorized the proposed use of the highway or road in writing.

B. Traffic Control Plan. The permit official, in consultation with the El Paso police department and the traffic engineer, shall determine the number of officers needed to appropriately police roadway closures and the time when such services shall commence and end, taking into consideration the following:

1. The proposed location of the public assembly or route of the parade;

2. The time of day that the event is to take place;

3. The date and day of the week proposed;

4. The nature, composition, format and configuration of the event;

5. The general traffic conditions in the area requested, both vehicular and pedestrian, with special attention given to the rerouting of the vehicles or pedestrians normally using the requested area;

6. The number of marked and unmarked intersections along the route requested, together with the traffic control devices present;

7. If traffic must be completely rerouted from the area, then the number of marked and unmarked intersections and the traffic control devices are to be taken into consideration;

8. The estimated number of participants; and

9. The estimated number of viewers. (Ord. 16488 § 2, 2006; Ord. 16317 § 5, 2006)

13.36.050 Costs and fees.

A. The applicant shall be responsible for hiring and paying the fees established herein for the

cost of law enforcement officers, vehicles and equipment to appropriately control traffic and to police roadway closures only during the entirety of each event to include the staging and disbanding of the event, as follows:

Assistance Required	Costs Paid by Applicant
First two or fewer officers;	None
First two or fewer vehicles;	
Maximum of three hours.	
Next three to seven officers;	50% of costs
Next three to five vehicles;	
Maximum of three hours.	
Next eight or more officers;	100% of costs
Next six or more vehicles;	
Maximum of three hours.	

In developing the traffic control plan under Section 13.36.040(B) of this chapter, the police department shall prepare estimated costs for the city and for the applicant for the event and shall furnish the estimate to the permit official and the applicant. The estimate of the city's costs shall include, where applicable, any personnel costs associated with paying overtime costs to police officers which are not chargeable to the applicant. A representative of the police department shall, when necessary, confer with the applicant and explain the estimated costs.

B. The police department shall prepare and maintain a schedule of fees to be charged under this section, based on its actual costs for payment of salaries and benefits, not to include overtime costs, for its law enforcement officers and equipment that are used for event traffic control. The schedule shall be on file with the permit official and the city comptroller and shall be made available to all applicants. Vehicles shall be charged at a rate of twelve dollars or as otherwise set by resolution of the city council.

C. Prior to the issuance of the permit, the applicant shall deposit with the city, an amount that is equal to half of the estimated amount of the applicant's portion of the costs of providing law enforcement officers and any other traffic control costs. The remainder of the applicant's portion of these costs will be due and paid in accordance with Section 13.36.080(H) of this chapter. If the applicant cancels the event and notifies the permit official at least twenty-four hours in advance of the commencement of the event, the amount deposited with the city under this section shall be refunded, provided, however, the applicant will be charged a thirty-dollar administrative fee for the city's costs related to the cancellation of the event and issuing the refund. If for reason other than cancellation of the event, the applicant deposits funds that exceed the applicant's total costs and such amount is over twenty-five dollars, the city will automatically process a refund and sent it to the applicant. However, if such amount is twenty-five dollars or less, the applicant must submit a request to receive such refund within ninety days after the conclusion of the event before such refund will be processed and paid.

D. The applicant shall reimburse the city for the costs of providing roadway and sidewalk cleaning accordance with Section 13.36.080(G) of this chapter. (Ord. 16987 § 2, 2008; Ord. 16535 § 1, 2007: Ord. 16317 § 6, 2006)
(Ord. No. 17493, 2-1-2011; Ord. No. 18394, § 1, 7-28-2015)

13.36.060 Approval or denial of application.

A. The permit official shall approve or deny an application within twenty days of receipt in accordance with the standards set forth in this chapter. A notice of denial shall clearly set forth the grounds upon which the permit was denied and, where feasible, shall contain a proposal for measures by which the applicant may cure any defects in the application or otherwise procure a permit.

B. Where an application is denied because the proposed event would conflict with another event that has or will be approved, the permit official shall propose an alternative place, if available for the same time, or an alternative time, if available for the same place.

C. Where an application is denied because the proposed event would take place at a location that cannot reasonably accommodate all of the expected participants, the permit official shall propose an alternative place, if available for the same time, or request that the applicant appropriately reduce the number of participants.

D. Where the police department has determined that all or a portion of the proposed route of a parade consisting of an athletic event such as a walk or foot or bicycle race creates significant inefficiencies in the use of law enforcement officers for traffic control purposes, the permit official in consultation with the police department may develop an alternate route to be used with the applicant's approval.

E. Where the police department determines that the length of an event anticipated to be more than three hours, will result in the substantial interruption of the movement of traffic, the permit official when issuing the permit, may modify and change the starting time of the event as appropriate to a time not earlier than seven a.m. to reduce the impact of the event on traffic movement.

F. If the applicant has requested the issuance of an amplification permit at the time of the submission of the application for a parade or public assembly permit, the permit official shall proceed to make a separate determination regarding the issuance of the amplification permit and may issue an amplification permit in conjunction with the parade or public assembly permit as permitted by and in accordance with the requirements established under Chapter 13.28 of this code.

G. Nothing in this chapter shall authorize the permit official to deny a permit based upon political, social, or religious grounds or reasons, or based upon the content of the views expressed.

H. The permit official may attach reasonable conditions to any permit approval as may be appropriate within the spirit and intent of this chapter. (Ord. 16317 § 7, 2006)

13.36.070 Appeals.

A. An applicant may appeal the denial of an application in writing within ten days after notice of the denial has been received by submitting a written request to the permit official. Within five business days, or such longer period of time agreed to by the applicant, the appeals official shall hold a hearing on whether to issue the permit or uphold the denial. The applicant shall have the right to present evidence at said hearing and to question appropriate city officials. The decision to issue the permit or uphold the denial shall be based solely on the approval criteria set forth in this chapter. The appeals official shall render a decision on the appeal within five business days after the date of the hearing. In the event that the purpose of the proposed event is a spontaneous response to a current event, or where other good and compelling causes are shown, the appeals official shall reasonably attempt to conduct the hearing and render a decision on the appeal as expeditiously as is practicable.

B. Except as provided in subsections D and E of this section, the decision of the appeals official is subject to review by the city council. Prior to the filing of any petition for declaratory judgment or other judicial determination pursuant to subsection C of this section, the applicant shall appeal the decision of the appeals official to the city council. The applicant shall submit a written appeal request to the permit official, who shall forward the request for placement on the agenda of the next available regular city council meeting in compliance with all ordinances and statutes relating to the placement of items on the council agenda and the posting of the agenda. The decision to issue or uphold the denial shall be based solely on the approval criteria set forth in this chapter.

C. The decision of the city council is subject to review in the district courts of El Paso County. Any petition for a declaratory judgment or other judicial determination as to whether the permit should be granted shall be filed with the clerk of district court within thirty days after the applicant has received notice of the decision. The city shall transmit the record to the court no later than five business days after filing its answer. The city shall in all matters before the court, seek prompt judi-

cial action and promptly file and respond to all pleadings, discovery and other matters before the court.

D. The decision of the permit official to refuse to accept a late application is not appealable.

E. The decision as to the amount of traffic control or clean up necessary in conjunction with an event, and the costs resulting therefrom, are not appealable, provided that the costs of traffic control are based on the schedules of fees required in Sections 13.36.050(A) and (B) of this chapter. (Ord. 16535 § 2, 2007: Ord. 16317 § 8, 2006)

13.36.080 Duties of permittee.

A. A permittee shall comply with all permit directions and conditions and with all applicable laws and ordinances.

B. The person heading or leading the parade shall carry the permit upon his person during the conduct of the parade and a permittee shall have the permit in his possession at all times during a public assembly.

C. The permittee shall not allow the parade to begin, proceed or continue until such time as the applicable traffic control plan or method is set up and functioning.

D. The permittee shall not make an exclusive use of any city-controlled park or park facility for a demonstration except in compliance with Section 13.24.200 of this code.

E. The permittee shall take all steps reasonably necessary to keep the area for the public assembly clean or the parade route clean and free of animal excrement during the parade.

F. The permittee shall, immediately upon the conclusion of the event, clean and remove all litter and debris left on the roadways, sidewalks, and other public rights-of-way by participants, animals, floats, and vehicles used in the event and by spectators to the event.

G. The permittee may, no later than fourteen business days prior to the day of the event, request the assistance of the city with such cleaning and if provided the permittee shall be responsible for the costs of the city cleaning. Such request shall be made on a form provided by the city and filed with the permit official.

H. In the event that the permittee does not request and receive the assistance of the city with such cleaning and the permittee fails to clean and remove all such litter and debris within four hours of the end of the event, the city may perform such cleaning and the permittee shall be responsible for the costs of the city cleaning.

I. Payment of all of the permittee's portion of the costs of providing on-duty law enforcement officers and any other traffic control costs, less the amount of deposit made under Section 13.36.050(C) of this chapter, shall be due and payable within ten days of receipt of the bill from the city comptroller.

J. Payment of any city cleaning costs shall be due and payable within ten days of receipt of the bill from the city comptroller. (Ord. 16535 § 3, 2007: Ord. 16317 § 9, 2006)

13.36.090 Duties of participants.

A. Upon the request of a peace officer, each participant who is operating a motor vehicle on a roadway pursuant to the laws of the State of Texas shall exhibit proof of financial responsibility as required under Chapter 601 of the Texas Transportation Code. A peace officer shall have the authority to prohibit the participation in a parade of any motor vehicle for which its operator cannot provide the required proof of financial responsibility.

B. During the course of the parade, each participant shall obey the directions of any peace officer who is directing or otherwise providing traffic control for that parade. A peace officer shall have the authority to prohibit the continued participation in a parade of any person who fails on more than one occasion to obey the directions of a peace officer.

C. Each participant shall remain responsible for the payment of any bridge-crossing tolls, should the parade route pass through a toll area.

D. All participants who enter or pass through an area under the control, direction or supervision of the United States Bureau of Customs and Border Protection shall comply with all laws, regulations and other requirements pertaining to the entry into and exit from such area. (Ord. 16317 § 10, 2006)

13.36.100 Violation—Penalty.

A. It shall be unlawful to unreasonably hamper, obstruct, impede, or interfere with a parade, or with any person, vehicle, or animal participating or used in the parade, and any person violating any provision in this chapter shall, upon conviction, be guilty of a misdemeanor and punished as provided in Sections 1.08.010 through 1.08.030 of this Code.

B. It shall be unlawful for the operator of a motor vehicle to drive between vehicles or persons comprising a parade when such vehicles or persons are in motion and are conspicuously designated as a parade and any person violating this chapter shall, upon conviction, be guilty of a misdemeanor and punished as provided in Sections 1.08.010 through 1.08.030 of this code.

C. A person who promotes or sponsors a parade for which a permit is required without a permit having been issued shall be deemed guilty of a misdemeanor and shall be punished as provided in Sections 1.08.010 through 1.08.030 of this code.

D. A person to whom a permit has been issued who intentionally violates the terms of the permit or who violates any of the duties set forth in Section 13.36.080 of this chapter shall be deemed guilty of a misdemeanor and shall be punished as provided in Sections 1.08.010 through 1.08.030 of this code.

E. A person participating in a parade for which a permit has been issued who intentionally violates the terms of the permit shall, upon conviction, be guilty of a misdemeanor and punished as provided in Sections 1.08.010 through 1.08.030 of this code.

F. A person who participates in a parade for which a permit is required without a permit having been issued shall, upon conviction, be guilty of a misdemeanor and punished as provided in Sections 1.08.010 through 1.08.030 of this code.

G. This chapter shall not be construed to authorize the use of the public roadways except in exact compliance with the laws of the state and other ordinances of the city applicable thereto, and persons who violate such other laws and ordinances shall be punished according to the provisions of the other applicable laws and ordinances.

H. Nothing in this chapter prohibits a law enforcement officer or firefighter from issuing a command to move or disperse in accordance with Texas Penal Code Section 42.04 in the event of a riot, unreasonable noise or obstructing passageway. (Ord. 16317 § 11, 2006)
(Ord. No. 019409, § 6, 12-6-2022)

Chapter 13.38

SPECIAL EVENTS

Sections:

13.38.010 Findings and purpose.

13.38.020 Definitions.

13.38.030 Permit Required.

13.38.040 Permit application.

13.38.050 Permitting criteria.

13.38.060 Costs and fees.

13.38.070 Approval, conditional approval, or denial of an application.

13.38.080 Duties of the permittee.

13.38.090 Revocation of a permit.

13.38.100 Appeals procedure.

13.38.110 Violation—Penalty.

13.38.010 Findings and purpose.

A. The City Council of the City of El Paso recognizes that special events are essential for a vibrant community and provide a distinct benefit to the local culture and economy.

B. The purpose of this Chapter is to create a uniform and fair process for the safe and orderly implementation of special events which utilize city infrastructure, assets, and personnel. This Chapter balances the needs of special events while protecting the public health, safety, and welfare.
(Ord. No. 18381, § 1, 7-7-2015)

13.38.020 Definitions.

For the purpose of this chapter, the words and phrases defined in the sections below shall have the meanings therein respectively ascribed to them by this section:

A. "Affected person" means the property owner, property manager or tenant of each property abutting the portion of a public right-of-way to be closed.

B. "Appeals official" means the city manager or the person designated by the city manager as being responsible for hearing appeals to decisions made by the permit official.

C. "Applicant" means any person, group, organization, or entity who seeks a special event permit from the permit official to conduct or sponsor a special event governed by this chapter. An applicant must be eighteen years of age or older.

D. "Permit application fee" means the fee to be paid by the applicant at the time the application is filed with the permit official, pursuant to the fee schedule established by resolution of the city council.

E. "Permit official" means the person or persons designated by the city manager as being responsible for issuing permits under this chapter.

F. "Permittee" means any person or organization issued a special event permit by the permit official.

G. "Private property event" means events conducted solely on private property and not requiring the use of any public right-of-way.

H. "Public right-of-way" means any street, sidewalk, alley and/or easement dedicated to the public use, as further defined by Chapter 19.50 of this Code.

I. "Site map" means a map or diagram approximately to scale depicting the area to be closed or used in conjunction with the special event showing all fire lanes, booths, stages, portable toilets, trash containers, any other important features for the event, and any other materials the applicant intends to place within the area.

J. "Special event" means any bazaar, block party, street dance, sidewalk sale, show, exhibition, festival, concert, celebration, or other event that requires the full or partial closure or occupation of a public right-of-way and is not classified as a film-making event, temporary event, or private property event as defined by other chapters of this title.

K. "Special event permit" means a permit issued under this chapter authorizing the conduct of a special event in accordance with its terms and conditions. A special event permit may be issued for a single event or for multiple dates of the same recurring event provided no changes are made to the site plan and all dates occur within twelve months of permit issuance.

L. "Temporary traffic control plan" means a plan describing temporary traffic control measures through and around the special event site to be used for facilitating pedestrian and vehicular users during the event.
(Ord. No. 18381, § 1, 7-7-2015; Ord. No. 019409, § 7, 12-6-2022)

13.38.030 Permit Required.

A. No special event, as defined herein, shall be conducted upon a public right-of-way unless a special event permit allowing such activity has been obtained pursuant to this Chapter.

B. A special event permit may be issued for a single event or for multiple dates of the same recurring event provided no changes are made to the site plan and all dates occur within twelve (12) months of permit issuance.

C. The special event permit required by this Chapter is in addition to any and all other permits and or licenses that may be required for the event or event activities pursuant to any other provision of the El Paso Municipal Code, any other city regulation, or any other county, state or federal law or regulation, including but not limited to permits related to health, food, alcohol, safety, and sound amplification.

D. This chapter shall not apply to the following events and activities, which are governed by other provisions of the El Paso Municipal Code:

1. An event which occurs exclusively within a city park or facility (Section 13.24.030);

2. A film-making event (Chapter 13.30);

3. A temporary event (Chapter 13.32);

4. A parade (Chapter 13.36);

5. A private property event.
(Ord. No. 18381, § 1, 7-7-2015; Ord. No. 019409, § 8, 12-6-2022)

13.38.040 Permit application.

A. Filing Application. An application for a special event permit shall be made in writing on a form prescribed by the permit official at least thirty (30) calendar days and not more than twelve (12) months prior to the date the special event is scheduled to begin.

B. Late Application. Notwithstanding the preceding subsection, the permit official may consider an application that is filed more than seven (7) business days but less than thirty (30) calendar days prior to the date the special event is scheduled to begin if the purpose of such event is a spontaneous response to a current event or where other good and compelling causes are shown, and the short notice does not unreasonably hinder or prejudice the City in preparing for the special event.

C. Application Form.

1. The application must include:

a. The name, address, and telephone number for the person in charge of the proposed event and the name of the organization with which that person is affiliated or on whose behalf the person is applying;

b. The name, address, and telephone number for an individual who shall be designated as the responsible planner and on-site manager for the event;

c. The date, time and place of the proposed event, including the time that the event will begin and end, and times for event setup and takedown;

d. The anticipated number of persons expected to participate in the event, and the basis on which this estimate is made;

e. The plan for ensuring that adequate parking, restroom facilities and trash receptacles are available in the vicinity of the event to accommodate the number of persons that are expected to attend the event; and

f. Such other information as requested by the permit official that may be reasonably necessary to determine compliance with this Chapter and other City policies or sections of the El Paso Municipal Code.

2. The application must be signed by the applicant and accompanied by the established application fee.

D. Documentation Required. The application shall be supplemented by the documentation

required under this subsection. The following documentation shall be submitted to the Permit Official no later than five (5) business days after the application is submitted unless otherwise authorized by the permit official.

1. Temporary Traffic Control Plan. The applicant shall develop and submit a temporary traffic control plan for closing the street, alley or other public right-of-way to include any intersections and rerouting the traffic, using appropriate manned barricades and signs or peace officers authorized by law to direct traffic on city streets, and shall also designate on the plan, the location of adequate and appropriate parking areas for those persons attending the event.

a. Such traffic control plan shall be in conformity with the most recent edition of the Texas Manual on Uniform Traffic Control Devices and shall be submitted to the permit official in writing, drawn on a map. In considering the appropriateness of a traffic control plan, the permit official may incorporate into the plan any recommendations made by the chief of police, the traffic engineer, or their designees, which may include the use of El Paso police officers.

b. The event must be conducted in such a manner that at least one lane of the street to be utilized will be capable of being reopened at all times for access by police, fire and other emergency vehicles and by persons requiring emergency access to properties abutting the function. The temporary traffic control plan shall depict the location of this lane.

2. Site Map. The applicant shall submit a map or diagram drawn approximately to scale depicting the area to be closed or used. Such map must show all fire lanes, booths, stages, portable toilets, trash containers, other important features for the event, and any other materials the applicant intends to place within the area.

3. Notice of Proposed Closure. The applicant must provide proof that notice of the proposed closure has been issued to each affected person and neighborhood association, if applicable, whose boundaries are included within, either wholly or partially, or whose property abuts the proposed closure area. Such notice shall be provided on a form prescribed by the Permit Official containing the name and address of each affected person, and a space in which the affected person or authorized representative of the neighborhood association may indicate with an original signature whether the affected person or neighborhood association opposes the closure.

E. Insurance and Indemnification Agreement. In addition, prior to permit issuance, the following documentation shall be submitted to the Permit Official no later than three (3) business days prior to the date the special event is scheduled to begin.

1. Indemnification Agreement. An applicant, by accepting and signing permit, agrees to indemnify, defend and hold harmless the City, its officers, agents, servants, and employees for and against all claims, causes of action, liability, damages, or expenses (including, but not limited to attorney fees and costs) for any damage or loss of property, illness, injury, physical, or mental impairment, loss of service, or death to any person arising out of or in connection with the special event. The indemnity specifically covers the City's own negligence, whether joint or sole. Entities that may not lawfully grant indemnities or may not lawfully be required to do so by the City need not grant the indemnity provided for in this subsection.

2. Insurance. A certificate of liability insurance shall be required naming the City as an additional insured in the amount and type of coverage required by the City's Risk Management Office. If such policy shall not be kept in full force and effect, the permit shall thereupon automatically become void.

F. If, prior to the event, any of the information required by Section 13.38.040 is changed and would require additional City services or review from any City department, the applicant must

submit an amended application to the permit official within the time requirements specified by Section 13.38.040.
(Ord. No. 18381, § 1, 7-7-2015)

13.38.050 Permitting criteria.

A. Grounds for Denial. An application, or permitted specific date of a recurring special event, may be denied for any of the following reasons:

1. The application is not fully completed and executed;

2. The applicant has not tendered the required application fee or has not tendered other required user fees within times prescribed;

3. The application contains a material falsehood or misrepresentation;

4. The applicant is legally incompetent to contract or to sue and be sued;

5. The applicant has, on prior occasions, made material misrepresentations regarding the nature or scope of an event;

6. The applicant has previously enabled a violation or has violated the terms of a special event permit issued to or on behalf of the applicant;

7. The applicant has, on prior occasions, damaged city property and has not paid in full for such damage;

8. A fully executed prior application for a use at the same time and place has been received, and a permit has been or will be granted to a prior applicant authorizing uses or activities that do not reasonably permit multiple simultaneous events;

9. The proposed event would conflict with previously planned programs organized, conducted, or sponsored by the City and previously scheduled at or near the same time and place;

10. The applicant requests a use not permitted under this chapter;

11. The proposed event would present an unreasonable danger to the public health or safety;

12. The proposed event would substantially or unnecessarily interfere with traffic, including but not limited to the unavailability of appropriate alternate routes for public transit vehicles and private vehicles;

13. The temporary traffic control plan and submitted site map do not adequately address security and traffic control issues or do not adequately address the criteria and requirements of this Chapter including, but not limited to the City's ability to deliver police, fire and emergency services to the event site and in the vicinity of the event site;

14. There would not, at the time of the event, be sufficient law enforcement and traffic control officers to adequately protect participants and non-participants from traffic related hazards in light of the other demands for police protection at the time of the proposed event;

15. The proposed event would take place on an arterial roadway during peak traffic hours;

16. The proposed event would take place at a location that cannot reasonably accommodate all of the expected participants;

17. The proposed event would take place on a state or federal highway or road and the appropriate governmental agency has not authorized the proposed use of the highway or road in writing;

18. Inadequate arrangements have been made for anticipated parking needs and for restroom facilities and trash receptacles;

19. The event will include amplified or non-amplified music or other sound sources that are expected to create a noise disturbance that cannot be appropriately abated or controlled by the applicant; or

20. The right-of-way closure for the event would deny or restrict access to abutting properties and substantial opposition to the closure has been received through the public notification process.
(Ord. No. 18381, § 1, 7-7-2015)

13.38.060 Costs and fees.

A. Permit Application Fee. The applicant shall pay the established non-refundable application fee upon submittal of the application for permit to the permit official. The application fee shall be in addition to costs for any other services, permits and licenses that will be provided by the City as

may be required for the event or event activities pursuant to any other provision of the El Paso Municipal Code and any other City regulation.

B. Late Permit Application Fee. Any person submitting a late application pursuant to Section 13.38.040(B) shall be charged an established additional non-refundable application fee for expedited service.

C. Temporary Street Closure. The established temporary street closure fee shall be paid prior to permit issuance.

D. Parking Meter Rentals. Applicants desiring to reserve and utilize metered parking spaces adjacent to the permit area, as identified on the site map, shall pay the established rental fee for the duration of the event, to include staging and disbanding of the event. Applicants shall not be required to pay the established rental fee for any metered parking spaces located within the permit area.

E. Other Permit, License, or Service Fees. Prior to Issuance. The applicant shall pay the full costs for services, permits and licenses that will be provided by the City as may be required for the event or event activities pursuant to any other provision of the El Paso Municipal Code and any other City regulation, with the exception of City Police traffic control assistance and event clean up assistance, for which shall be paid in accordance with subsection (E) below.

F. Traffic Control and Peace Officers. The applicant shall be responsible for obtaining and placing barricades and signs in conformity with the temporary traffic control plan, and shall pay the costs associated with the placement of such barricades and signs, and any costs for City police traffic control assistance, including the hiring and paying required law enforcement officers, vehicles and equipment that are used for traffic control which shall be calculated and invoiced within 10 days following the event.

1. When calculating the costs for the Police Department's portion of traffic control assistance under this Chapter, the Police Department shall prepare an estimated cost for the event and shall furnish the estimate to the Permit Official and the applicant not later than fourteen (14) calendar days after the application has been received for department review or three (3) days before the proposed event, whichever occurs first. When requested, a representative of the Police Department shall explain the estimated costs to the applicant.

2. The Police Department shall prepare and maintain a schedule of fees, based on its actual costs for its law enforcement officers, including overtime costs, as appropriate, vehicles, and equipment that are used for event traffic control. The schedule shall be on file with the Permit Official and the City Comptroller and shall be made available to all applicants.

3. Prior to the issuance of the permit, the applicant shall deposit with the City an amount that is equal to half of the estimated amount of the costs for the Police Department's portion of traffic control assistance.

4. If the traffic control will be provided by peace officers other than El Paso Police Officers, the permittee shall be responsible for any and all costs associated with the hiring and use of those peace officers.

G. Event Cleanup. The applicant shall be responsible for all costs of litter and debris removal in accordance with Section 13.38.080 of this Chapter.

H. Specific to Permits for a Recurring Event. Amendments to special event permits for the same recurring event to add dates in accordance with subsection 13.38.070(H) shall require payment of the established temporary street closure fee prior to amended permit issuance.

I. Exemptions. Where the applicant is a City department, the applicant shall be exempt from paying the permit application, late permit application, and temporary street closure fees required in this section.

(Ord. No. 18381, § 1, 7-7-2015)

13.38.070 Approval, conditional approval, or denial of an application.

A. Deadline for Approval, Conditional Approval, or Denial. The permit official shall ap-

prove, conditionally approve, or deny an application within thirty (30) days of receipt of an application submitted in accordance with the standards set forth in this Chapter, or for late applications, within three (3) business days of the proposed event. A notice of conditional approval or denial shall clearly set forth the grounds for which the permit was conditionally approved or denied and, where feasible, shall contain a proposal for measures by which the applicant may cure any defects in the application or otherwise procure a permit.

B. Conflict with Another Event. If an application is denied because the proposed event would conflict with another event that has or will be approved, the permit official shall propose an alternative place if available for the same time, or an alternative time if available for the same place.

C. Inadequate Location. If an application is denied because the proposed event would take place at a location that cannot reasonably accommodate all of the expected participants, the permit official shall propose an alternative place if available for the same time, or request that the applicant appropriately reduce the number of participants.

D. Amplification Permit. If the applicant has requested an amplification permit at the time of application, the permit official shall proceed to make a separate determination regarding the amplification permit and may issue an amplification permit in conjunction with the special event permit as permitted by and in accordance with the requirements established under Chapter 13.28 of this Code.

E. First Amendment Rights. Nothing in this chapter shall authorize the permit official to deny a permit based upon political, social, or religious grounds, or based upon the content of the views expressed.

F. Permit Conditions. The permit official may attach reasonable conditions to any permit approval as may be appropriate within the spirit and intent of this chapter.

G. Appeals. An applicant may appeal the denial or conditions attached to the approval of an application through the process outlined in Section 13.38.100 of this Chapter.

H. Specific to Permits for a Recurring Event. A permittee may request, on a form prescribed by the permit official, to add dates to an approved special event permit for the same recurring event provided no changes are made to the site plan and all dates occur within twelve (12) months of permit issuance, and provided that such request is made at least fourteen (14) calendar days prior to the date the recurring event is scheduled to begin.

1. Approval of the request is subject to the permitting criteria outlined in Section 13.38.050.

2. The Permit Official shall approve, conditionally approve, or deny such request within fourteen (14) calendars days of receipt of request or seven (7) days prior to the proposed event date, whichever occurs first.

(Ord. No. 18381, § 1, 7-7-2015)

13.38.080 Duties of the permittee.

A. The permittee shall comply with all permit directions and conditions and with all applicable laws and ordinances.

B. The permittee shall comply with all requirements of the Texas Alcoholic Beverage Commission, if alcoholic beverages are to be sold, served or consumed at a special event.

C. The permittee shall carry the permit upon his person at all times during the conduct of the event.

D. The permittee shall comply with all aspects of the approved traffic control plan.

E. The permittee shall not make an exclusive use of any city-controlled park or park facility for a demonstration except in compliance with Section 13.24.200 of this Code.

F. All barricades and signs must be removed and streets must be reopened immediately after the event and subsequent street cleaning has ended.

G. The permittee shall, immediately upon the conclusion of the event, clean and remove all litter and debris on the roadways, sidewalks, and other public rights-of-way.

H. In the event that the permittee does not request and receive the assistance of the city with such cleaning and the permittee fails to clean and remove all such litter and debris within four hours of the end of the event, the city may perform such cleaning and the permittee shall be responsible for the costs of the city cleaning. This does not waive the permittee's obligations under Section 13.38.080(H).

I. Payment of all of the permittee's portion of the costs of providing on-duty law enforcement officers and any other traffic control costs, less the amount of deposit made under Section 13.38.060(F) of this chapter, shall be due and payable within ten (10) business days of receipt of the bill from the City Comptroller.

J. Payment of any city cleaning costs shall be due and payable within ten (10) business days of receipt of the bill from the City Comptroller.
(Ord. No. 18381, § 1, 7-7-2015)

13.38.090 Revocation of a permit.

A. Any special event permit issued under the terms of this article may be revoked by the City Manager or designee, the Police Chief or designee, and the Fire Marshal or designee for grounds, including but not limited to the following:

1. Fraud, misrepresentation or any false statement contained in the application for the permit;

2. The permittee conducts the event in an unlawful manner or in such a manner as to constitute a breach of the peace;

3. The conduct of the event has caused, will cause, or will have the effect of an imminent threat to the public health, safety and/or general welfare; and/or

4. The permittee has failed to comply with all the terms and conditions of the special event permit or any and all other permits and or licenses that may be required for the event or event activities pursuant to any other provision of the El Paso Municipal Code, any other city regulation, or any other county, state, or federal law or regulation.

B. Upon revocation of the permit, the permittee shall immediately terminate the conduct of the event, and dismantle and remove any improvements and/or obstructions located in any public rights-of-way and the event site, and return the public rights-of-way to the condition as it was before the event.

C. Revocation for cause shall constitute grounds for denial of subsequent permit requests.
(Ord. No. 18381, § 1, 7-7-2015)

13.38.100 Appeals procedure.

A. Appeals Official. Except as provided in subsection (D), an applicant may appeal (i) the denial of a permit, (ii) a permit condition, (iii) a determination that good cause to consider a late application does not exist, or (iv) revocation of a permit within ten (10) days after notice of the denial, conditional approval, determination, or revocation has been received by submitting a written request to the permit official. Within ten (10) days of receipt of the written appeals request, the appeals official shall conduct a hearing on whether to issue the permit or uphold the denial, conditional approval, determination, or revocation of the permit. The applicant shall have the right to present evidence at said hearing and to question appropriate City officials. The decision of the appeals official shall be based solely on the approval criteria set forth in this Chapter. The appeals official shall render a decision on the appeal within five (5) days of the date of the hearing. In the event that the purpose of the proposed event is a spontaneous response to a current event, or where other good and compelling causes are shown, the appeals official shall reasonably attempt to conduct the hearing and render a decision on the appeal as expeditiously as is practicable.

B. The decision as to the amount of traffic control or clean up necessary in conjunction with an event and the costs resulting there from, are not appealable, provided that the costs are based on the schedule of fees required in Section 13.38.060 of this chapter.

C. City Council. The decision of the appeals official is subject to review by the City Council. Prior to the filing of any petition for declaratory

judgment or other judicial determination pursuant to subsection C, the applicant shall appeal the decision of the appeals official to the City Council. The applicant shall submit a written appeal request to the permit official, who shall forward the request for placement on the agenda of the next available regular City Council meeting in compliance with all ordinances, statutes and policies relating to the placement of items on the Council agenda and the posting of the agenda. The decision to issue or uphold the denial, conditional approval, determination, or revocation of the permit shall be based solely on the approval criteria set forth in this Chapter.

D. District Courts of El Paso County. The decision of the City Council is subject to review in the district courts of El Paso County. Any petition for a declaratory judgment or other judicial determination as to whether the permit should be granted shall be filed with the clerk of the District Court within thirty (30) days after the applicant has received notice of the decision. The parties shall comply with all laws and rules governing such matter before the court.
(Ord. No. 18381, § 1, 7-7-2015)

13.38.110 Violation—Penalty.

A. A person who promotes or sponsors a special event for which a permit is required without a permit having been issued shall, upon conviction, be guilty of a misdemeanor and punished as provided in Sections 1.08.010 through 1.08.030 of this Code.

B. A permittee who intentionally violates the terms of the permit or who violates any of the duties set forth in Section 13.38.080 shall, upon conviction, be guilty of a misdemeanor and punished as provided in Sections 1.08.010 through 1.08.030 of this Code.

C. A person participating in a special event for which a permit has been issued who intentionally violates the terms of the permit shall, upon conviction, be guilty of a misdemeanor and punished as provided in Sections 1.08.010 through 1.08.030 of this Code.

D. A person who participates in a special event for which a permit is required without a permit having been issued shall, upon conviction, be guilty of a misdemeanor and punished as provided in Sections 1.08.010 through 1.08.030 of this Code.

E. This Chapter shall not be construed to authorize the use of the public right-of-way except in strict compliance with the laws of the state and other ordinances of the city applicable thereto, and persons who violate such other laws and ordinances shall be punished according to the provisions of the other applicable laws and ordinances.

F. Nothing in this Chapter prohibits a law enforcement officer or firefighter from issuing a command to move or disperse in accordance with Texas Penal Code Section 42.04 in the event of a riot, unreasonable noise, or obstructed passageway.
(Ord. No. 18381, § 1, 7-7-2015)

Chapter 13.40

GRAFFITI ABATEMENT

Sections:

13.40.010 Definitions.

13.40.020 Furnishing a marker to a minor.

13.40.030 Possession of a marker by a minor.

13.40.040 Possession of aerosol containers of paint by minors.

13.40.050 Possession of aerosol containers of paint and markers in public areas.

13.40.100 Graffiti abatement—Purpose and intent.

13.40.110 Graffiti abatement—Removal of graffiti.

13.40.120 Graffiti abatement—Obligations of property owner.

13.40.010 Definitions.

As used in this chapter:

"Aerosol container of paint" means any aerosol container, regardless of the material from which it is made, which is adapted or made for the purpose of spraying paint or other fluid which is not water soluble and which is capable of defacing property.

"Marker" means any marker containing a fluid which is not water soluble and has a point, brush, applicator or other writing surface of three-eights of an inch or greater.

"Minor" means a person who is under the age of eighteen years of age.

"Public building" means any building, or part thereof, owned, controlled or used by the United States of America, the state of Texas, or any agency or political subdivision thereof.

"Public facility" means any park, plaza, playground, picnic area, stadium, ball park, swimming pool, or amphitheater which is designed or held for use by the public. (Ord. 12965 § 2, 1996)

13.40.020 Furnishing a marker to a minor.

A. It is unlawful for any person to sell, give, donate or otherwise furnish a marker to a minor.

B. It shall be an affirmative defense to prosecution under this section that the minor was furnished with the marker by his or her parent or guardian or by another person for use in the minor's employment or in connection with a school, civic or religious activity; provided, that such parent, guardian or other person supervised the minor in his or her use of the marker, and such parent, guardian or other person regained or attempted to regain the marker from the minor immediately upon completion of the minor's use of the marker. (Ord. 12965 § 3, 1996)

13.40.030 Possession of a marker by a minor.

A. It is unlawful for a minor to possess a marker.

B. It shall be an affirmative defense to prosecution under this section that the minor was furnished with the marker by his or her parent or guardian or by another person for use in the minor's employment or in connection with a school, civic or religious activity, and the minor was supervised by such parent, guardian, or other person who regained the marker from the minor immediately upon completion of the minor's use of the marker. (Ord. 12965 § 4, 1996)

13.40.040 Possession of aerosol containers of paint by minors.

A. It is unlawful for a minor to possess an aerosol container of paint.

B. It shall be an affirmative defense to prosecution under subsection A of this section that:

1. The minor possessed the aerosol container of paint in connection with a use in accordance with its intended purpose;

2. An adult having supervisory responsibility over the minor provided the minor with the aerosol container of paint;

3. The minor's possession and use of the aerosol container of paint took place under such adult's direct supervision and in such adult's presence; and

4. The adult regained the aerosol container of paint from the minor immediately upon completion of the minor's use of the aerosol container of paint. (Ord. 12965 § 5 (part), 1996)

13.40.050 Possession of aerosol containers of paint and markers in public areas.

A. It is unlawful for any person age eighteen or older to possess an aerosol container of paint or a marker on the property of another or in any public building or upon any public facility, other than on the premises of the person's employer.

B. It shall be an affirmative defense to prosecution under subsection A of this section that the owner, manager, or other person having administrative or other control of the property, building, or facility consented to the presence of the aerosol container of paint or marker. (Ord. 12965 § 6, 1996)

13.40.100 Graffiti abatement—Purpose and intent.

A. It is the purpose and intent of Sections 13.40.100 through 13.40.120 of this code to provide a procedure for removal of graffiti from walls and structures on property next to or visible from the rights-of-way within the city in order to reduce blight and deterioration within the city, to reduce crime and lawlessness, and to protect the public health and safety.

B. The city finds and determines that graffiti is an impure and unwholesome matter and its existence on property next to and visible from the rights-of-way in the city constitutes a public nuisance; the prompt abatement of which is a public necessity to avoid the detrimental impact of such graffiti on the city and its residents, to prevent the further spread of graffiti and other criminal acts, and to protect the health, safety and welfare of the residents of the city. (Ord. 13326 § 1, 1997)

13.40.110 Graffiti abatement—Removal of graffiti.

The chief of police and his designees are authorized to develop, use and accept on behalf of the city, the signatures of property owners and authorized agents of property owners on the consent to entry and release of liability agreement required under Section 13.40.120 of this code. The chief of police and his designees are also authorized to accept, on behalf of the city, all donations given for graffiti removal purposes, including supplies and equipment which the chief or his designees determine are appropriate for use in graffiti removal. (Ord. 13326 § 2, 1997)

13.40.120 Graffiti abatement—Obligations of property owner.

A. Any property owner, any authorized agent of a property owner of property lying within the city limits may request and receive as may be available the assistance of the city with the removal of graffiti from their property which is next to or visible from the rights-of-way in the city. Such property owner or authorized agent of a property owner shall first sign a consent to entry and release of liability agreement as may be prepared and used by the city before the city may remove or clean any such graffiti from their property.

B. Any community, governmental or nonprofit organization that provides free graffiti removal services within the city, may also request and receive supplies as may be available or transportation for supplies that will be used for the removal of graffiti from property which is next to or visible from the rights-of-way in the city, provided that such removal is done with the consent of the property owner. Any organization that receives any city assistance under this section shall provide proof of compliance with this section upon the request of the chief of police or his designees.

C. Any property owner or any authorized agent who signs a consent to entry and release of liability agreement and who sells the property or becomes no longer authorized by the property owner to consent to the removal of graffiti from property during the time period in which a consent to entry and waiver and release of liability

agreement is in effect regarding the property, shall immediately notify the city of such sale or removal of authorization. Procedures for the making of such notice shall be contained in the consent to entry and release of liability agreement. (Ord. 13326 § 2, 1997)

Chapter 13.42

STREETCAR TRACK ACCESS PROGRAM PROCEDURE

Sections:

13.42.010 Definitions.

13.42.020 General.

13.42.030 Violation—Penalty.

13.42.010 Definitions.

A. "Activity" means the following:

1. Any construction, demolition, event, moving event, excavation, use of right-of-way, cleaning, painting, repairing, or installation of traffic control devices, regardless of whether any of the previous requires approval of the city under the El Paso City Code; or

2. Any activity under the El Paso City Code that requires a permit, license, permission, or review from the city.

B. "Streetcar safety officer" means the person designated by the city manager to oversee the safety of all streetcar infrastructure and streetcar operations.

C. "Streetcar" means the rail mass transit system owned and operated by the City of El Paso.

D. "Streetcar infrastructure" means any component or item used for the operation of the streetcar, including but not limited to, the railcars, track works, traction power substations, overhead contact systems, overhead contact system poles, train wayside communications systems, and/or the streetcar maintenance facility.

(Ord. No. 18824, § 1, 7-24-2018)

13.42.020 General.

A. Any person or entity performing any activity under any streetcar infrastructure or within ten feet of any streetcar infrastructure must comply with the track access program procedure as adopted and amended by the streetcar safety officer from time to time.

B. The streetcar safety officer has authority to create and revise the track access program procedure for purposes of safeguarding the public health and safety in accordance with best practices as well as the protection of the streetcar infrastructure. The streetcar safety officer shall make the track access program procedure available to the public.

C. The city council may establish any fees for administrative costs, track access training, system reconfiguration, and personnel time needed to reconfigure the system. city council may establish the fees through the annual budget resolution, amendment to the annual budget resolution, or other resolution, ordinance or act of the city council.

D. For purposes of protecting the health, safety, and welfare of all citizens, the streetcar safety officer is authorized to issue a stop work order to any activity that does not comply with this chapter and/or the track access program procedure.

(Ord. No. 18824, § 1, 7-24-2018)

13.42.030 Violation—Penalty.

A. Any person who shall violate any provision of this chapter shall, upon conviction, be guilty of a misdemeanor and punished by a fine not exceeding five hundred dollars. Each day the violation occurs shall constitute a separate offense.

B. The streetcar safety officer, the permit official, and any code enforcement officer of the City of El Paso are authorized to enforce the provisions of this chapter and shall have the power to issue misdemeanor citations to any person violating the provisions of this chapter.

(Ord. No. 18824, § 1, 7-24-2018)

Title 14

AIRCRAFT AND AIRPORTS*

Chapters:

14.02	**Purpose**
14.04	**General Provisions and Definitions**
14.08	**Airport Zoning**
14.12	**Aircraft Use Regulations**
14.16	**Airport Use Regulations**
14.20	**Airport Vehicular Traffic Regulations**
14.24	**Commercial Air Carriers Rates and Charges**

***Editor's note—**Ord. No. 19007, § 1, adopted Dec. 17, 2019, repealed the former Tit. 14, Ch. 14.04, §§ 14.04.010—14.04.040, Ch. 14.08, §§ 14.08.010—14.08.130, Ch. 14.12, §§ 14.12.010—14.12.220, Ch. 14.16, §§ 14.16.010—14.16.407, Ch. 14.20, §§ 14.20.010—14.20.250, Ch. 14.24, §§ 14.24.010—14.24.140, and App. A, and enacted a new Tit. 14 as set out herein. The former Tit. 14 pertained to similar subject matter and derived from prior code §§ 3-1, 3-2, 3-7—3-30, 3-36, 3-38—3-85, 20-142—20-146; Ords. 8301 and 8521, adopted in 1985; Ord. 8571 §§ 1, 2, adopted in 1986; Ord. 8637, adopted in 1986; Ord. 8638 § 1, adopted in 1986; Ord. 8677, adopted in 1986; Ord. 8728(part), adopted in 1986; Ord. 8808(part), adopted in 1986; Ord. 8920, adopted in 1987; Ord. 9042(part), adopted in 1987; Ord. 9151, adopted in 1987; Ord. 9152, adopted in 1987; Ord. 9577, adopted in 1988; Ord. 9707(part), adopted in 1989; Ord. 10280(part), adopted in 1990; Ord. 11137, §§ 1-8, adopted in 1992; Ord. 12157, adopted in 1994; Ord. 12549 §§ 1, 2, 4, adopted in 1995; Ord. 12549 § 2, 1995 3(A), 3(B), 3(C)(1)—(C)(9), 4, 1995; Ord. 12989, adopted in 1996; Ord. 13752, adopted in 1998; Ord. 14601, adopted in 2000; Ord. 14712, § 1, adopted in 2000; Ord. 15007, adopted in 2001; Ord. 15220 § 1, adopted in 2002; Ord. 15411 § 1, adopted in 2003; Ord. 15416 §§ 1, 2, adopted in 2003; Ord. 15728 § 1(part), adopted in 2004; Ord. 15729 § 1, adopted in 2004; Ord. 15730 § 1, adopted in 2004; Ord. 15911 § 1, adopted in 2004; Ord. 15943 § 1, adopted in 2004; Ord. 15944 § 1, adopted in 2004; Ord. 16193 § 1, adopted in 2005; Ord. 16194 §§ 1, 2, adopted in 2005; Ord. 16820 § 1, adopted in 2008; Ord. No. 17689, § 1, adopted in 12-6-2011; Ord. No. 17699, § 1, adopted in 12-20-2011; Ord. No. 18489, § 1, adopted April 19, 2016; and Ord. No. 18550, § 1, Aug. 9, 2016.

Chapter 14.02

PURPOSE

Sections:

14.02.010 Purpose.

14.02.010 Purpose.

The following provisions will govern the conduct of all persons engaged in activities, aeronautical or other, at the El Paso International Airport, unless otherwise specifically provided for in Federal Aviation Regulations or by separate agreement with the City of El Paso. In those instances where there may be a conflict between these rules and the provisions, conditions and terms of such an agreement, the specific written agreement shall govern.

(Ord. No. 19007, § 1, 12-17-2019)

Chapter 14.04

GENERAL PROVISIONS AND DEFINITIONS

Sections:

14.04.010 Definitions.

14.04.020 Applicability of provisions.

14.04.030 Accidents—Reporting required.

14.04.040 Violation—Penalty.

14.04.060 Fees.

14.04.010 Definitions.

A. Words not specifically defined in this regulation which relate to aeronautical practices, and equipment, will be construed according to their general usage in the aviation industry.

B. Terms Defined.

"Aerobatic flying" means any intentional airplane maneuver or stunt not necessary to air navigation, or operation of aircraft in such manner as to endanger human life or safety by the performance of unusual or dangerous maneuvers.

"Aircraft" means by aeroplane, airplane, gas bag, flying machine, balloon, or any contrivance now known or hereafter invented, used or designed for navigation of or flight in the air, except a parachute or other contrivance used primarily as safety equipment.

"Airport," unless otherwise stated or required by the context, means the area shown on the El Paso International Airport, most recently approved airport layout plan which is on file in the El Paso International Airport and which is made part of this title.

"Airworthy aircraft" means an aircraft that is in a condition that is suitable for flight.

"City" shall mean the City of El Paso, Texas.

"Code" means the El Paso, Texas City Code and any amendments thereto.

"Director" means the director of aviation of the El Paso International Airport or his/her authorized designees.

"Person" means any individual, group of individuals, partnership, association or corporation, or other legal entity.

"TSA" means the Transportation Security Administration.

"Unmanned aircraft" means an aircraft operated without the possibility of direct human intervention from within or on the aircraft, or as more currently defined by 14 CFR Part 107.
(Ord. No. 19007, § 1, 12-17-2019)

14.04.020 Applicability of provisions.

The provisions of Sections 14.04.010, and 14.12.010 through 14.12.110 shall not apply to public aircraft of the federal government, or of a state or territory, or of a political subdivision of a state or territory, or to aircraft licensed by a foreign country with which the United States has a reciprocal agreement covering operation of such aircraft.
(Ord. No. 19007, § 1, 12-17-2019)

14.04.030 Accidents—Reporting required.

The operator of any ground vehicle or aircraft involved in an accident or incident on the airport shall promptly report such accident or incident to the director or authorized designee.
(Ord. No. 19007, § 1, 12-17-2019)

14.04.040 Violation—Penalty.

A. Any person violating any provision of Sections 14.12.100, 14.16.010 through 14.16.100, 14.16.120 through 14.16.150, 14.20.250 or 14.20.010 through 14.20.180 shall be deemed guilty of a misdemeanor and punished as provided in Sections 1.08.010, 1.08.020 and 1.08.030.

B. The director or authorized designee may request any person violating Sections 14.12.120 through 14.12.220, 14.16.010 through 14.16.100, 14.16.120 through 14.16.150, 14.20.010 through 14.20.180, or 14.16.406 to leave the airport, and may eject any person who fails to comply with such request, or may direct any peace officer to eject such person.

C. A violation of Section 14.20.240 of this Code is a civil offense. Such civil violations are subject to the administrative adjudication process as provided in Chapter 12.85 of this Code.
(Ord. No. 19007, § 1, 12-17-2019)

14.04.060 Fees.

A. City council may set fees referenced in this title by the following methods:

1. Through the annual budget resolution;

2. Through a contract validly executed under federal or state law; and/or

3. Through a contract validly executed under a city ordinance.

(Ord. No. 19007, § 1, 12-17-2019)

Chapter 14.08

AIRPORT ZONING

Sections:

14.08.010 Definitions.

14.08.020 Airport zone map.

14.08.030 Height limits.

14.08.040 Use restrictions.

14.08.050 Nonconforming uses and structures.

14.08.060 Variances.

14.08.070 Hazard marking and lighting.

14.08.080 Board of adjustment—Powers and duties.

14.08.090 Appeals to board of adjustment.

14.08.100 Appeals to district court.

14.08.110 Administrative officer designated.

14.08.120 Enforcement and remedies.

14.08.130 Conflicting regulations.

14.08.010 Definitions.

As used in this chapter, unless the context otherwise requires:

"Airport hazard" is any temporary or permanent structure, including all appurtenances, that pose a hazard as defined by FAA AC 70/7460-1L or successor regulations.

"Movement area" means the runways, taxiways, and other areas of an airport that are used for taxiing, takeoff, and landing of aircraft, exclusive of loading ramps and parking areas.
(Ord. No. 19007, § 1, 12-17-2019)

14.08.020 Airport zone map.

In order to carry out the purposes of this chapter, the area referenced herewith covers all the land within five miles of the landing area of the airport and within the territory of the United States of America.
(Ord. No. 19007, § 1, 12-17-2019)

14.08.030 Height limits.

Except as otherwise provided in this chapter, no structure or tree shall be erected, altered, allowed to grow, or maintained within the airport zone map to a height in excess of the applicable elevations (elevation above mean sea level as established by the United States Coast and Geodetic Survey) shown on the Part 77 Surfaces map as approved by the FAA within the El Paso International Airport. Height and clearance shall be determined in accordance with FAA Part 77 rule adherence. Proposed construction of objects shall follow all required notification (Form 7460-1, or most current, submittal) and lighting in accordance with the FAA.
(Ord. No. 19007, § 1, 12-17-2019)

14.08.040 Use restrictions.

Notwithstanding any other provisions of this chapter, no use may be made of land within the airport zone map, in such a manner as to create electrical or other interference with radio or other (including cyber) communication between the airport and aircraft, make it difficult for flyers to distinguish between airport lights and others, result in glare in the eyes of flyers using the airport, impair visibility in the vicinity of the airport, or otherwise endanger the landing, taking-off or maneuvering of aircraft or other vehicles that utilize the airport. Land use shall be restricted within the vicinity of the airport in accordance with federal, state, and local rules and regulations to ensure compatible land use surrounding the airport. The purpose of the use restrictions is to prevent interference with the state and efficient operations of the airport to provide air service.
(Ord. No. 19007, § 1, 12-17-2019)

14.08.050 Nonconforming uses and structures.

Nonconforming uses and structures shall not be permitted within the vicinity of the airport unless prior approval is received in accordance with federal, state, and local rules and regulations. The regulations prescribed in Sections 14.08.030 and 14.08.040 shall not be construed to require the

removal, lowering or other change or alteration of any structure, including all phases or elements of a multiphase structure, regardless of whether actual construction has commenced, or object of natural growth not conforming to the regulations on the date of the adoption of the regulations herein, or otherwise interfere with the continuance of any registered nonconforming use. Nothing herein contained shall require any change in the construction, alteration or intended use of any structure the construction or alteration of which was begun prior to the effective date of the regulations herein, and is diligently prosecuted and completed within two years thereof and any exclusion authorized by the FAA or authorized designee. However, lighting may be required as deemed necessary by the FAA or the airport pursuant to Section 14.08.070.
(Ord. No. 19007, § 1, 12-17-2019)

14.08.060 Variances.

Any person desiring to erect any structure or increase the height of any structure, or permit the growth of any tree, or use his property, not in accordance with the regulations prescribed in this chapter, may apply for a variance to the board of adjustment as provided in this chapter. Such variance shall be allowed where a literal application or enforcement of the regulations would result in practical difficulty or unnecessary hardship and the relief granted would not be contrary to the public interest but do substantial justice and be in accordance with the spirit of this chapter. Variances can be considered provided that deviations from this article do not impact air navigation. As part of the variance application process, the FAA airspace analysis must be completed.
(Ord. No. 19007, § 1, 12-17-2019)

14.08.070 Hazard marking and lighting.

Any variance granted under Section 14.08.060 may, if such action is deemed advisable to effectuate the purposes of this chapter and reasonable in the circumstances, be so conditioned as to require the owner of the structure or tree in question at his own expense, or permit the city at its own expense, to install, operate and maintain thereof such markers and lights as may be necessary to indicate to flyers the presence of an airport hazard. Hazard marking and lighting shall be in accordance with Federal Aviation Administration Advisory Circular 70/7460-1L, or its successor, as determined by the Federal Aviation during the filing of the FAA Form 7460-1.
(Ord. No. 19007, § 1, 12-17-2019)

14.08.080 Board of adjustment—Powers and duties.

A. The board of adjustment shall have the powers as outlined in Article 2.16 in addition to:

1. To hear and decide appeals from any order, requirements, decision or determination made by the zoning administrator in the enforcement of this chapter;

2. To hear and decide variances to the terms of this chapter.

B. The board of adjustment for the City, created pursuant to Chapter 2.16 of this Code, shall act as the airport board of adjustment and shall, when acting as the airport board of adjustment, follow the same procedures and guidelines for the conduct of its meetings as when it functions as the board of adjustment for the city.
(Ord. No. 19007, § 1, 12-17-2019)

14.08.090 Appeals to board of adjustment.

Appeals to this title shall follow those more particularly described in Section 2.16.040, and shall be in accordance with the provisions of Section 241.036 of the Texas Local Government Code.
(Ord. No. 19007, § 1, 12-17-2019)

14.08.100 Appeals to district court.

Any person aggrieved, or taxpayer affected, by any decision of the board of adjustment may appeal to the district court of the judicial district wherein the airport is located, as provided by statute.
(Ord. No. 19007, § 1, 12-17-2019)

14.08.110 Administrative officer designated.

The zoning administrator is designated the administrative officer charged with the duty of administering and enforcing the regulations herein prescribed. The duties of the zoning administrator shall include processing all applications for variances under Section 14.08.060, but the zoning administrator shall not have or exercise any of the powers or duties herein delegated to the board of adjustment.

(Ord. No. 19007, § 1, 12-17-2019)

14.08.120 Enforcement and remedies.

The city, separately, or in conjunction with the county, may institute in the district court of the judicial district wherein the airport is located, an action to prevent, restrain, correct or abate any violation of this chapter, or any regulations, orders, ordinances, resolutions or rulings promulgated or made pursuant to this chapter, and the court shall adjudge to the plaintiff such relief, by way of injunction (which may be mandatory) or otherwise as may be proper under all the facts and circumstances of the case, in order to effectuate the purposes of this chapter and of the regulations adopted and orders, resolutions and rulings made pursuant hereto.

(Ord. No. 19007, § 1, 12-17-2019)

14.08.130 Conflicting regulations.

Where this chapter imposes a greater or more stringent restriction upon the use of land than is imposed or required by any other ordinance or regulation under this El Paso City Code, the provisions of this chapter shall govern, pursuant to FAA regulations.

(Ord. No. 19007, § 1, 12-17-2019)

Chapter 14.12

AIRCRAFT USE REGULATIONS

Sections:

14.12.010 Airspace defined.

14.12.020 Aircraft position lights—Use required when.

14.12.030 Radio receiver required—Operation of required when.

14.12.040 Minimum altitude.

14.12.050 Airman certificate and aircraft certificate of airworthiness required.

14.12.060 Compliance with federal rules required.

14.12.070 Aerobatic flying prohibited.

14.12.080 Landing to be only at established landing places.

14.12.090 Parachute jumping prohibited.

14.12.100 Dropping objects from aircraft prohibited.

14.12.105 Objects delivered or released from aircraft—Application required.

14.12.110 Advertising from aircraft.

14.12.120 Suspension or restriction of aircraft operations—Authority of director or designee.

14.12.130 Disabled aircraft.

14.12.140 Damage to airport property—Reporting required.

14.12.150 Starting and/or running of aircraft engines.

14.12.160 Taxiing.

14.12.170 Take-offs and landings.

14.12.180 Motorless aircraft.

14.12.190 Parking of aircraft.

14.12.200 Unattended aircraft.

14.12.210 Use of T-hangars.

14.12.220 Unmanned aircraft systems (UAS).

14.12.010 Airspace defined.

The term "airspace" as used in Sections 14.12.020 and 14.12.030 means the Class C airspace which includes an area within a circle the radius of which is five nautical miles and the center of which is the airport reference point, as established and marked on the ground by the United States Coast and Geodetic Survey, except such part of the area as lies within the Republic of Mexico. The circle extends from the surface to a height of one thousand two hundred feet above ground level at which point the circle extends to a ten nautical miles radius up to a height of four thousand feet above ground level.
(Ord. No. 19007, § 1, 12-17-2019)

14.12.020 Aircraft position lights—Use required when.

From thirty minutes before sunset to thirty minutes after sunrise, or at any other time when flight visibility is less than three miles, no person shall operate any aircraft within the airspace of the El Paso International Airport without showing the standard position lights required by regulations of the Federal Aviation Administration.
(Ord. No. 19007, § 1, 12-17-2019)

14.12.030 Radio receiver required—Operation of required when.

No person shall make a take-off within the Class C airspace with any aircraft not equipped with a radio receiver and transponder with altitude encoding capability which enables the pilot to obtain instructions from the air traffic control tower of the El Paso International Airport; and the pilot or person in command of the aircraft shall maintain continuous communication with the appropriate radio frequency for such instructions while the aircraft is within the airspace; provided, the air traffic control tower or designee may permit such take-off during daylight when in their opinion an emergency exists and such take-off can be made with reasonable safety.
(Ord. No. 19007, § 1, 12-17-2019)

14.12.040 Minimum altitude.

A. Except while taking off or landing at an established landing field or airport, no person shall fly or permit any aircraft to be flown within the city limits except at a height sufficient to permit a reasonably safe emergency landing, which shall be at least one thousand feet when outside the landing pattern of the International Airport and five hundred feet when inside the landing pattern. The landing pattern is the area within a radius of one mile from the airport reference point as defined in Section 14.12.010.

B. The provisions of this section may be deviated from when necessary because of immediate danger, stress of weather conditions or other unavoidable cause.

C. The provisions of this section may be waived by the city council when it permits the landing of an aircraft within the city other than upon a regularly established airport field or landing place pursuant to Section 14.12.080 of this chapter or the delivery and release of equipment, construction material or any other object or material from an aircraft pursuant to Section 14.12.105 of this chapter.

(Ord. No. 19007, § 1, 12-17-2019)

14.12.050 Airman certificate and aircraft certificate of airworthiness required.

No person shall operate any aircraft or unmanned aircraft within or over the corporate limits of the city unless such person has first been issued an airman certificate, if required, by the Federal Aviation Administration and unless such aircraft, if required, shall have first received a certificate of airworthiness from such agency.

(Ord. No. 19007, § 1, 12-17-2019)

14.12.060 Compliance with federal rules required.

No person shall operate any aircraft or unmanned aerial vehicle over or within the city in violation of any valid air traffic or other rule or regulation established by the Federal Aviation Administration.

(Ord. No. 19007, § 1, 12-17-2019)

14.12.070 Aerobatic flying prohibited.

Aerobatic flying by any person flying over any portion of the city is prohibited, unless authorized by air traffic control and the director of aviation or their designee.

(Ord. No. 19007, § 1, 12-17-2019)

14.12.080 Landing to be only at established landing places.

A. Except in case of emergency, no person shall land any aircraft within the city except upon a regularly established airport field, heliport, helipad, helistop, or landing place. This prohibition shall not be applicable to aircraft owned or operated by agencies of federal, state, or local governments.

B. The provisions of this section may be waived on a case by case or regular basis by resolution of the city council with respect to the landing or landings of an aircraft outside the airspace (as that term is defined in Section 14.12.010 of this chapter) of any airport, field or landing place, upon the application of any person who presents evidence satisfactory to the city council of the following:

1. That the proposed landing or landings are not in violation of any rule or regulation of the Federal Aviation Administration;

2. The purpose of the landing or landings;

3. The number and type of aircraft to be utilized in the proposed landing or landings;

4. That the operator or operators of the aircraft to be utilized and the aircraft to be utilized are properly and currently certified by the Federal Aviation Administration, or by some other authorized agency;

5. The time, place and date of the proposed landing or landings and the estimated time of departure;

6. The reason why the proposed landing or landings should be permitted;

7. An insurance policy shall be maintained by the operator of the aircraft to insure against third party liability as well as passenger bodily injury liability that meets the minimum amounts

and requirements specified in a written agreement with city. This requirement shall not be applicable in the case of aircraft owned and operated by agencies of the federal government or the state.

8. A statement signed by the applicant that the applicant will, in consideration of permission from the city council to conduct the landing or landings requested, indemnify and hold the city harmless from any and all claims for death, personal injury, property damage or otherwise, arising out of or incidental to the landing, landings or takeoffs of aircraft for which waiver of this section is granted. This requirement shall not be applicable in the case of aircraft owned and operated by agencies of the federal government or the state.
(Ord. No. 19007, § 1, 12-17-2019)

14.12.090 Parachute jumping prohibited.

No person shall make a parachute jump within the city limits except in case of actual emergency or approved in writing by the director of aviation or designee. This prohibition shall not be applicable to parachute jumps by agencies of federal, state, or local governments.
(Ord. No. 19007, § 1, 12-17-2019)

14.12.100 Dropping objects from aircraft prohibited.

No person in any aircraft shall cause or permit to be thrown out, discharged or dropped within the city any object or thing, except loose water or loose sand ballast when absolutely essential to the safety of the occupants of the aircraft and except as provided in Section 14.12.105.
(Ord. No. 19007, § 1, 12-17-2019)

14.12.105 Objects delivered or released from aircraft—Application required.

A. No person shall deliver or release from any airborne aircraft any equipment, construction material or any other object, or any persons, within the city, except for activities which have been preempted by federal or state law, without first obtaining a permit from the city council which may be granted on a case by case or regular basis upon submission of an application that provides at a minimum the following information:

1. The identity and credentials of the applicant;

2. The time, location and duration of the operation;

3. A description of equipment, construction material or other objects to be delivered or released from the aircraft, together with a description of the method to be used in the delivery or release and the flight approach path to the site involved;

4. Evidence that the applicant has been certified by the Federal Aviation Administration pursuant to 14 Code of Federal Regulations Part 133 in the case of rotocraft external load operation; that applicant's air delivery or air drop will be in compliance with any and all applicable regulations of the Federal Aviation Administration and any other applicable federal or state laws or regulations. The requirement set forth in this section for compliance with 14 CFR Part 133 apply only to rotary wing aircraft; all other requirements of this section apply only to both rotary and fixed wing aircraft;

5. Evidence that the operator or operators of the aircraft to be utilized and the aircraft are properly and currently certified by the Federal Aviation Administration, or by some other authorized federal agency;

6. Whether the proposed location of the air drop or air delivery and the approach to such location or locations are within a noise sensitive zone as defined in Section 9.40.070 of this Code;

7. Evidence that the applicant has made satisfactory arrangements with law enforcement agencies to exclude, where necessary, unauthorized persons from the area of the proposed operation;

8. The reason that the project is in the best interests of the city;

9. Evidence of general liability combined insurance coverage issued by an insurance company authorized to do business within the state, applicable to the proposed operation, in a minimum

amount of five hundred thousand dollars. This requirement shall not be applicable in the case of the aircraft owned and operated by agencies of the federal government or the state; and

10. A statement signed by the applicant that the applicant will, in consideration of permission from the city council to conduct the air delivery or release requested, indemnify and hold the city harmless from any and all claims for death, personal injury, property damage or otherwise, arising out of or incidental to the landing, landings or takeoffs of aircraft for which waiver of this section is granted. This requirement shall not be applicable in the case of aircraft owned and operated by agencies of the federal government or the state.
(Ord. No. 19007, § 1, 12-17-2019)

14.12.110 Advertising from aircraft.

No person shall make an exhibition flight by carrying banners on, distributing circulars or advertising matter from, or operating loud speaking device from any aircraft flying within the city limits, without first obtaining a permit from the city council. Such permit will not be granted if in the opinion of the city council the proposed operation will endanger persons or property or cause discomfort or annoyance to the public; nor in any case unless the aircraft and the person operating it are properly licensed by the Federal Aviation Administration.
(Ord. No. 19007, § 1, 12-17-2019)

14.12.120 Suspension or restriction of aircraft operations—Authority of director or designee.

The director or designee may suspend or restrict any or all aircraft operations on, from, or to, the airport whenever such action, in their discretion, is deemed necessary in the interest of safety.
(Ord. No. 19007, § 1, 12-17-2019)

14.12.130 Disabled aircraft.

Aircraft owners and their pilots and agents shall be responsible for the prompt disposal of disabled aircraft and parts thereof unless otherwise directed by proper federal authorities, after proper inspections and clearances have been obtained from proper federal authorities. All disabled aircraft shall be placed in a hangar or covered, such that the aircraft is out of the public view. If such screening in not possible, the aircraft's responsible party shall coordinate with the airport. Should the owners, their pilots or agents, fail to comply, the director or designee is authorized, in order to restore flight services, to remove damaged aircraft, parts or FOD from the landing area, ramp and apron areas, or the airport, at the expense of the aircraft owners, their pilots or agents, without liability for damage which may result in the course of such removal.
(Ord. No. 19007, § 1, 12-17-2019)

14.12.140 Damage to airport property—Reporting required.

Any person observing damage, injury or destruction of airport property shall so report to the director or designee or the control tower operator immediately.
(Ord. No. 19007, § 1, 12-17-2019)

14.12.150 Starting and/or running of aircraft engines.

A. Aircraft engines shall be started and run-up only in places designated by signs or as specifically authorized by the director or designee or control tower as published in the current chart supplement.

B. No aircraft engine shall be started or operated in any manner unless a licensed pilot or mechanic is at the controls.

C. Any aircraft not equipped with locking brakes shall have the wheels adequately chocked before starting any engine.

D. No aircraft engine shall be powered in any hangar.

E. Engines are to be no higher than idle at the terminal gates.
(Ord. No. 19007, § 1, 12-17-2019)

14.12.160 Taxiing.

A. No aircraft shall be taxied in the movement area without prior clearance from the air traffic control tower, and then only at speeds that shall assure complete control at all times.

B. While awaiting take-off clearance, aircraft shall not be taxied past the "mandatory hold" lines painted on the taxiways.

C. Aircraft shall not be taxied into or out of any hangar.

(Ord. No. 19007, § 1, 12-17-2019)

14.12.170 Take-offs and landings.

A. All take-offs and landings shall be made on the paved runways except in emergencies, unless otherwise directed by the air traffic control tower.

B. Aircraft, after landing, shall turn off the runway at the first practicable taxiway or runway intersection or as specifically instructed by the air traffic control tower.

C. All aircraft shall be operated on the airport by a pilot, or other persons aboard controlling any part of the operation thereof, in a physical and mental condition compliant with federal regulations for the operation of aircraft.

(Ord. No. 19007, § 1, 12-17-2019)

14.12.180 Motorless aircraft.

No motorless aircraft may land or take off from the airport without prior permission of the director.

(Ord. No. 19007, § 1, 12-17-2019)

14.12.190 Parking of aircraft.

A. Aircraft shall not be parked in any area other than those so designated by the director.

B. Aircraft shall not be parked at the passenger terminal building except for the purpose of loading or unloading passengers, mail, air express or air freight and the aircraft is designated as a commercial passenger aircraft. Air freight aircraft shall park in designated cargo parking areas only.

C. Upon direction of the director, the operator of any aircraft parked or stored on the airport in such a way as to impair airport safety and serviceability, shall move such aircraft from the place where it is parked or stored to any other designated place or off the airport property. Should the operator refuse or fail to comply with such direction, the director may have the aircraft moved to such designated place or off the airport property at the operator's expense, and without liability for damage which may result in the course of such moving.

D. Airworthy aircraft that is not parked overnight in its preferentially assigned gate (as defined the in signatory agreement between the airline and the city) will be assessed an overnight parking fee as set forth in Schedule C of the annual budget resolution.

E. Unairworthy aircraft, wrecks, "junkers," or parts thereof, shall not be stored on the public areas of the airport used for parking aircraft unless awaiting scheduled repairs by fixed base operators or maintenance facilities. Any non-flyable aircraft or aircraft parts which remain on public airport parking facilities for an excess of ninety calendar days shall be classified as "dead storage" and the applicable fee for such storage shall apply. Any aircraft stored in excess of six months shall be removed from the airport or may be removed by the director or designee at their discretion. All applicable costs for removal shall be recoverable by the airport.

(Ord. No. 19007, § 1, 12-17-2019)

14.12.200 Unattended aircraft.

No aircraft shall be left unattended on the airport unless it is adequately secured and chocked or is parked within a hangar.

(Ord. No. 19007, § 1, 12-17-2019)

14.12.210 Use of T-hangars.

A. No person shall utilize these hangars for any commercial use not specifically authorized in a lease agreement by the director.

B. Short-term vehicle is parking is allowed with T-hangars while the aircraft is out. Vehicles may be parked on the pavement adjacent to the

T-hangars only when the tenant is present, provided that the taxiway is not blocked. Vehicles may not be left unattended outside the T-hangars at any time.

C. The electrical system of each T-hangar is for light service only. All such devices should be properly grounded. No electrical motor or appliance is to be located within eighteen inches of the hangar floor.

D. Aircraft are not to be fueled in a T-hangar.

E. Aircraft batteries are not to be changed while any portion of the aircraft is in the T-hangar.

F. Area heaters, regardless of type, are not permitted in the T-hangars. Open flame operations of any kind are strictly prohibited. No smoking or use of electronic cigarettes are permitted in the T-hangars.

G. Lessees of T-hangar facilities shall comply with all applicable federal, state, local and airport rules, regulations, statutes and ordinances.

H. Modification of any T-hangar is prohibited unless the written approval of the director is granted.

I. Locks for T-hangars shall be provided by the governance of the El Paso International Airport.

J. Waste oil or fuel is not to be disposed of in a drain or on the ground. It must be disposed of in a container approved by the governance of the El Paso International Airport.

K. After first attending an airport sponsored driving class and obtaining the requisite ramp pass, T-hangar tenants are permitted to use the T-hangar taxilane for ground vehicular access to their hangar, subject to the exercise of due caution and the philosophy that aircraft have the right-of-way at all times. Vehicles utilized for driving to and from the airport may be parked inside the T-hangar leased to the tenant provided tenant has driving privileges.

L. All hangars and T-hangars can be inspected by the governance of the El Paso International Airport assigned management team in order to ensure that prohibited items are not present or to determine if there are other safety, security or health violations.

(Ord. No. 19007, § 1, 12-17-2019)

14.12.220 Unmanned aircraft systems (UAS).

Unmanned aircraft systems ("UAS"), or "drones," shall be regulated according to the purposes for which the UAS is operated according to applicable federal and state regulations.

(Ord. No. 19007, § 1, 12-17-2019)

Chapter 14.16

AIRPORT USE REGULATIONS

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Article I General Rules and Regulations

14.16.005 Definitions.

Definitions. Notwithstanding anything to the contrary set forth elsewhere in this title, the following definitions shall apply for the purposes of this chapter:

"Permittee" means a person or organization conducting regulated activities pursuant to a permit duly issued under this chapter.

"Public areas" means those portions of the terminal building which permit generally unrestricted and unscreened access.

"Regulated activities" means those activities within the airport by persons or organizations desiring to exercise constitutionally protected rights of free speech and expression and freedom of religion, for which a permit is required under this chapter, namely:

1. Religious or other proselytism;
2. Solicitation and acceptance of donations;
3. Distribution of handbills, tracts and other literature.

(Ord. No. 19007, § 1, 12-17-2019)

14.16.010 Application of provisions.

The rules and regulations in Sections 14.16.010 through 14.16.100, 14.16.120 through 14.16.150 and 14.20.250 apply to all persons on the airport, except premises which are outside the airline terminal building and are leased to and in the exclusive possession of others. Entry of any person into the airport shall be conditioned upon compliance with Sections 14.16.010 through 14.16.100, 14.16.120 through 14.16.150 and 14.20.250, and the entry shall be deemed an agreement by the person entering to comply therewith.

(Ord. No. 19007, § 1, 12-17-2019)

14.16.020 Restricted areas—Persons allowed to enter.

All areas of the airport except those areas open to the public are restricted except to those persons who are authorized to be therein and who display the proper EPIA-issued badge for the appropriate area(s), or are properly escorted and no person shall enter upon the movement and non-movement areas of the airport including the security identification display area and the sterile areas except:

A. Persons assigned to duty therein having appropriate EPIA issued badge media and access privileges;

B. Authorized representatives of the Federal Aviation Administration or the Transportation Security Administration displaying agency identification in line with official duties;

C. Passengers escorted by authorized personnel entering the sterile area or ramp areas for the purpose of enplaning and deplaning;

D. Persons engaged, or about to be engaged, or having been engaged, in the operation of any aircraft;

E. Persons authorized under contractual agreements with the city; and

F. Persons with official airport issued identification as required by CFR 1542.

(Ord. No. 19007, § 1, 12-17-2019)

14.16.021 Air operations area—Responsibilities.

A. All persons, including, but not limited to, certificated airline carriers, air cargo operators, fixed base operators, and others engaging in activities at the El Paso International Airport, having control by lease or otherwise, over areas within the air operations area or over areas which permit access to the air operations area, shall be responsible for the following:

1. Controlling access to the air operations area, including methods for preventing the entry of unauthorized persons and ground vehicles, through any area over which such person has control, except as provided in subsection B.1 of this section; and

2. Promptly detecting the intrusion or attempted intrusion of unauthorized persons and ground vehicles through controlled areas into the

air operations area and promptly notifying airport operations of such intrusion or attempted intrusion.

B. Authorized persons—Responsibilities.

1. Any person who has authority to enter the air operations area and who permits an unauthorized person to accompany him or her shall be responsible for ensuring that such unauthorized person remains under escort by an authorized person at all times while in the air operations area.

2. Any person entering the air operations area shall ensure that any gate through which entry is gained is properly closed and secure after the entry and to notify airport security promptly if such gate does not close properly.

C. Penalty. Any person who willfully, recklessly or negligently fails to discharge the responsibilities set forth in subsection A or B of this section shall be guilty of a misdemeanor and shall be liable to a fine not to exceed one thousand dollars and each day such violation shall be permitted to exist shall constitute a separate offense and may lose access privileges temporarily or permanently.

D. TSA Violation—Responsibility. In any case in which the Transportation Security Administration assesses a civil penalty against the El Paso International Airport for a violation of Transportation Security Administration regulation Part 1540, Section 105, occurring on or through any area under the control of a person at the El Paso International Airport or as a result of a violation of subsection B.1 and B.2 of this section, the El Paso International Airport shall be reimbursed by the person whose act or failure to act caused the violation resulting in the civil penalty or by the person, as defined in Section 1.04.030(F) of this Code, whose employee, agent, servant or independent contractor caused the violation resulting in the civil penalty.

E. For the purpose of this section, the air operations area is defined as that part of the El Paso International Airport which is designed and used for landing, taking off or surface maneuvering of airplanes, including taxiways, runways, aprons and adjacent field areas.
(Ord. No. 19007, § 1, 12-17-2019)

14.16.022 Badging.

The airport shall issue badges to those persons authorized to access restricted areas as required by TSA and may charge fees necessary to recover costs to include but not limited to criminal history background checks, fingerprinting, and materials at the time of issuance and renewal and for lost badges and badges not returned. Fees will be set forth in the budget resolution approved by city council for each fiscal year.
(Ord. No. 19007, § 1, 12-17-2019)

14.16.030 Traffic areas—Use.

No person shall travel on the airport other than on the roads, walks or places provided for the use of traffic. No person shall use the roads or walks in such manner as to hinder or obstruct their proper use by others. All persons shall adhere to posted traffic control signs and marking unless the individual is responding to an emergency on the airport.
(Ord. No. 19007, § 1, 12-17-2019)

14.16.040 Animals prohibited in terminal building and landing areas—Exception.

No person shall enter the terminal building or landing area of the airport with an animal, except that service animals, as defined in the Americans with Disabilities Act (1990) or Air Carrier Access Act (1986), may be permitted in the terminal building. This does not apply where animals are being shipped on air carriers and are restrained by leash or properly contained. This section shall not apply to animals controlled or approved by a government agency.
(Ord. No. 19007, § 1, 12-17-2019)

14.16.050 Abandoned or lost property.

A. All property, other than freight or baggage delivered to the airport by a common carrier,

which is lost or abandoned by its owner on the airport shall be reported to or deposited with the members of the El Paso Police Department ("EPPD") assigned to the El Paso International Airport to be placed in the custody of the EPPD with a police report regarding the circumstances under which the property was found.

B. The EPPD shall surrender the property to a claimant who presents satisfactory evidence of ownership, or right to possession. Under circumstances which could result in conflicting claims, the EPPD may require the claimant to give reasonable security for the return of the property or request the city's legal department to file an interpleader suit.

C. All property, other than freight or baggage delivered to the airport by a common carrier, which is lost or abandoned by its owner at the TSA security checkpoint, shall remain in the custody of the Transportation Security Administration and not be turned over to the custody of the El Paso International Airport.

D. All weapons, lost and confiscated, shall promptly be turned into the EPPD property office to be stored and disposed of pursuant to Section 3.32.040 of this Code.

E. All other lost, mislaid or abandoned property found on the airport which is not disposed of pursuant to subsection B or C of this section and which remains in the custody of the EPPD for thirty days shall be delivered to the property office to be stored and disposed of pursuant to Section 3.32.040 of this Code.

(Ord. No. 19007, § 1, 12-17-2019)

14.16.060 Smoking prohibited.

Smoking or the use of electronic cigarettes shall be prohibited in the terminal and terminal ramp ConRAC facilities, public and commercial parking lots, security identification display areas (SIDA), and where fuel is dispended in accordance with National Fire Protection Association (NFPA) 407. Exceptions to this shall only be permitted as indicated by signage, and as more particularly described in Chapter 9.50 of the El Paso Municipal Code.

(Ord. No. 19007, § 1, 12-17-2019)

14.16.070 Sanitary regulations.

No person shall place, dispose or deposit in any manner trash, garbage or refuse in or upon the airport property except at such places and under such conditions as the director may from time to time prescribe. No person shall use a toilet other than in a clean and sanitary manner, nor expectorate on the floors, walls or any surfaces of any airport building.

(Ord. No. 19007, § 1, 12-17-2019)

14.16.080 Firearms prohibited—Exception.

The open or concealed carry of a handgun shall only be permitted by the holder of a valid Texas license to carry a handgun, or equivalent out-of-state license for which the State of Texas recognizes or has a reciprocal agreement. The open or concealed carry of a handgun shall be limited only to those public, non-secured areas of the airport. The open carry of a long arm shall be permitted by any person legally permitted to own a long arm, except that this shall be limited only to those public, non-secured areas of the airport. Only duly authorized persons, police officers, federal employees authorized to carry firearms in the performance of their duties, law enforcement officers on duty or members of the Armed Forces of the United States on official duty shall carry any firearms on the airport except as otherwise permitted. Unloaded, cased firearms may be carried as checked baggage. All firearms intended to be carried as baggage are required to be declared at the appropriate ticket counter.

(Ord. No. 19007, § 1, 12-17-2019)

14.16.090 Alcoholic beverages—Consumption restricted to designated areas.

No person shall drink any alcoholic beverage upon any portion of the airport open to the public, except in such restaurant or other place as shall

be properly designated and licensed for dispensing alcoholic beverages, except as otherwise permitted in Concourse A or B.
(Ord. No. 19007, § 1, 12-17-2019)

14.16.100 Commercial picture taking.

No person, except duly accredited representatives of the news media, shall take still, motion or sound pictures for commercial purposes on the airport without permission of the director.
(Ord. No. 19007, § 1, 12-17-2019)

14.16.110 Distribution of literature and solicitation of donations.

A. Purpose. It shall be the purpose of this section:

1. To assure the fair use of the public area at the airport by persons seeking to exercise constitutional freedom of expression and for religious organizations to proselytize;

2. To permit equitable access among persons and groups desiring to exercise such constitutional freedoms;

3. To restrict such activities to public areas of airport buildings and premises, excluding concourse areas beyond screening checkpoints;

4. To prevent interference with passengers and other users of the airport; to allow free access to airport travel facilities and free passage among those facilities and to ensure the free and orderly flow of pedestrian traffic through the airport premises;

5. To discourage interference with persons who are required to wait in lines; and

6. To prevent interference with anti-hijack and other security measures.

B. Conduct of Regulated Activities. The conduct of regulated activities pursuant to this section will be permitted in the following manner in the public areas of the airport, such areas as more particularly depicted in a diagram which is available from the airport. The director shall have the authority from time to time to temporarily relocate permittees for reasons relating to security, safety or construction.

1. No individual shall be approached by more than one distributor or solicitor at a time;

2. No distributor or solicitor shall make noise or create any disturbance which will interfere with the ability of the public to hear public address announcements nor shall any distributor or solicitor shout at any person. The use of sound or voice amplification apparatus is prohibited;

3. To ensure the efficient and orderly use of the airport for its primary purpose and to assure equal opportunity for freedom of expression the following restrictions shall apply:

a. Not more than a total of four persons shall be permitted to engage in regulated activities in the terminal building at the same time, and regulated activities permitted inside the terminal building shall not include solicitation and acceptance of donations;

b. Not more than a total of four persons shall be permitted to engage in regulated activities in areas designated by the director on the sidewalk area outside the terminal building at the same time, and such activities shall not include the solicitation and acceptance of donations.

4. No regulated activity shall interfere with the free passage of the public within the terminal building;

5. No signs, placards or other materials shall be affixed to the terminal building;

6. No leaflets or other written materials shall be distributed by leaving them unattended in the terminal building;

7. No person shall engage in regulated activities under this section except in one of the designated areas indicated on the aforementioned diagram and no more than two persons shall be in a designated area at any given time;

8. No person engaging in regulated activities under this section shall, by word or gesture or otherwise, harass or threaten any other persons or in any way obstruct, delay or interfere with the free movement of any other person or seek to coerce or

physically disturb or touch any other person without that person's permission; or hamper or impede or interfere with the conduct of any authorized business at the airport; and

9. Engaging in regulated activities under this section in any location other than one assigned in a permit issued by the director in accordance with Section 14.16.110(E) is prohibited.

C. Permit Requirement. It shall be unlawful for any person or organization to engage in any regulated activities under this section without first obtaining a written permit from the director. For the purposes of obtaining such a permit a written application on a form prescribed by and provided by the city must be filed with the director. The filing of such application is required in order that adequate precautions may be taken by the director of aviation to protect the public health, safety and order and to ensure the efficient and orderly use of airport property for its primary purpose and to ensure equal opportunity for freedom of expression.

D. Issuance of Permits.

1. A maximum of four permits will be issued for a total of four persons, inclusive of all permits. Where more than one applicant requests a permit, permits will be granted to ensure that each applicant is authorized to have at least one person authorized to engage in regulated activities for the applicant, subject to the overall maximum of eight persons during any permit period.

2. The number of persons authorized to engage in regulated activities under a permit will be allocated as follows:

a. Inside the terminal building at the designated spaces.

i. One applicant, any number up to a maximum of four;

ii. Two applicants, a maximum of two per permit;

iii. Three applicants, one per permit. An additional person will be authorized, if requested; provided, however, that if more than one applicant requests an additional person, those applicants who make such a request will draw lots to determine which applicant is authorized an additional person;

iv. Four applicants, one for each permit;

v. More than four applicants, all applicants present at the time and place assigned for issuance of permits will draw lots in a manner to be determined by the director or authorized designee. A permit will be issued to each of the four successful applicants authorizing one person per permit.

b. Outside on sidewalk area.

i. One applicant, any number up to a maximum of four;

ii. Two applicants, a maximum of two permits;

iii. Three applicants, one per permit. An additional person will be authorized, if requested; provided, however, that if more than one applicant requests an additional person, those applicants who make such a request will draw lots to determine which applicant is authorized an additional person;

iv. Four applicants, one for each permit;

v. More than four applicants, all applicants present at the time and place assigned for issuance of permits will draw lots in a manner to be determined by the director or designee. A permit will be issued to each of the four successful applicants authorizing one person per permit.

3. All persons engaging in regulated activities under this section must be authorized representatives of a permittee and such persons must register in advance with the director or authorized designee and must wear airport provided identification badges, readily visible at all times.

E. Denial of Permit.

1. A permit applicant denied a permit by the director or designee shall be furnished a written statement at the time of denial, indicating the reason or reasons the permit was denied. The director may deny an application under this chapter if the director finds:

a. That the applicant has supplied false or incorrect information on any application for a permit;

b. That the applicant has failed to supply all information required on the application form; or

c. That the applicant has failed to pay the application fee.

2. In the event that applicant's current or prior permit is under suspension, no new permit shall be issued until the term of such suspension has expired.

3. In the event that an applicant's current or prior permit is revoked, no new permit shall be issued until the term of such revocation has expired.

4. The director shall issue written notice of denial to the applicant which shall contain, at a minimum, the following:

a. The name of the applicant;

b. A statement that the permit is denied; and

c. Reason(s) for the denial.

5. The applicant has five business days after receipt of the notice of denial to file with the city manager a written protest to the denial. A copy of the written protest shall also be sent to the director.

F. Suspension or Revocation.

1. The director may issue a written notice of intent to suspend for not more than sixty days or a written notice of intent to revoke a permit subject to this chapter if the director determines that any of the following is true:

a. The permit holder supplied false or misleading information on any application for a permit;

b. The permit holder is found, after notice and opportunity for hearing, to be in violation of a provision of this chapter;

c. The permit holder is indebted to the city for fees or payment of penalties imposed by this chapter or by rule adopted under this chapter; or

d. The director may issue written notice of intent to revoke a permit if the holder violates this chapter on two or more occasions within a twelve-month period.

2. A permit holder that has had their permit suspended or revoked shall be required to surrender the permit to the director within seven calendar days of receiving notice from the director or designee of suspension or revocation, regardless of whether the permit holder requests an appeal in accordance with this chapter. In the case of suspension, failure to surrender the permit within seven days of notice shall cause the director to revoke the permit. In the case of revocation, the period of revocation shall be eighteen months before the permit holder can apply for a new permit.

3. A permit holder shall not commence activities addressed under the permit after the term of suspension has ended without first retrieving their permit from the director or designee.

4. It shall be a violation of this chapter for a permit holder to continue the activities addressed under the permit during the period of suspension or revocation of the permit.

5. Notice. The director or designee shall issue a written notice of suspension or revocation of a permit to the permit holder, with the following information:

a. Name and address of the permit holder;

b. Statement of whether the permit is suspended or revoked;

c. Reason(s) for the suspension or revocation;

d. Recommendation of corrective measures to bring the permit holder into compliance with the requirements of this chapter;

e. Statement that the permit be surrendered to the director or designee within seven days of receipt of notice;

f. Statement that the permit, if suspended, is subject to revocation for failure to surrender the permit within the allotted time; and

g. Statement that the suspension or revocation may be appealed under the provisions set forth in this chapter.

6. A permit holder may not apply for a new permit for a period of twelve months after said permit has been revoked.

G. Permit—Appeal of Denial, Suspension or Revocation.

1. Any applicant or permit holder may appeal the denial, suspension or revocation of a license or permit required by this chapter of the City Code to the city manager as provided in this section.

2. Within ten business days of denial, suspension or revocation, the director or designee shall prepare a report indicating the reasons for the denial, suspension or revocation and shall provide a copy to the applicant or permit holder. The director or designee's decision is final unless within ten business days from the date of receiving such report, the applicant or permit holder files with the city clerks a written appeal to the city manager specifying the reasons for the appeal. Said appeal shall also include a written rebuttal to the report.

3. The city manager or designee shall review the report and the appellant's rebuttal. The city manager or designee may allow the appellant to make an oral presentation or submit additional rebuttal. The city manager or designee shall make a ruling on the appeal within a reasonable period of time after the appeal has been filed.

4. The city manager or designee shall sustain, reverse or modify the action of the director or designee and shall notify the appellant of the decision in writing. The decision of the city manager or designee is final.

H. Not Applicable. This section shall not apply to business or commercial activities at the airport which shall be governed by the provisions of Article II of this chapter.

I. Penalty. Any person who violates any provision of this section or who intentionally violates the terms of a permit issued to engage in regulated activities at the airport shall be guilty of a misdemeanor and is punishable as provided in Section 1.08.010 of this Code.

(Ord. No. 19007, § 1, 12-17-2019)

14.16.120 Construction, alteration work, electrical wiring.

No person shall do any construction, alteration work or electrical wiring in or about any existing hangar or building at the airport without first securing written permission from the director.

(Ord. No. 19007, § 1, 12-17-2019)

14.16.130 Fuel flowage fees.

A fuel flowage fee per gallon per the currently adopted Schedule C of the city's annual budget resolution shall be payable to the city for all aircraft fuel sold or delivered into an aircraft at the airport, except: (1) where a different fee is established by any lease or airline operating agreement with the city in force and effect at the time this section is approved by the city council and provided that the exception for fees established by existing lease or airline operating agreements shall not apply after the expiration, termination or cancellation of any such lease or airline operating agreement; or (2) if the aircraft fueled is being used in connection with operations of a tenant leasing space in cargo buildings owned by the city.

(Ord. No. 19007, § 1, 12-17-2019)

14.16.135 Fueling of aircraft.

No aircraft shall be fueled except at the site of a fixed base operator, a tenant-provided fueling facility, at a self-fueling station, or designated ramp areas. Fueling at general aviation T-hangars is prohibited.

(Ord. No. 19007, § 1, 12-17-2019)

14.16.140 Gasoline and damaging liquid spills on pavement—Responsibility for removal.

Spillage or dripping of gasoline, oil, jet fuel, kerosene, grease or any other material which may be unsightly or detrimental to the pavement in any area at the airport, shall be removed immediately in accordance with the applicable stormwater pollution prevention plan (SWPPP) procedures. The responsibility for removal shall be assumed by the operator of the equipment causing the spillage or by the tenant or concessionaire responsible for the deposit thereof on the pavement. Airport operations should be notified immediately upon spillage

or dripping to evaluate the situation and determine if an aircraft rescue and firefighting (ARFF) response is required. The airport shall be authorized to collect compensation for the cost of damage and clean-up to its property from the operator, tenant, and or concessionaire responsible for the deposit on the pavement.
(Ord. No. 19007, § 1, 12-17-2019)

14.16.150 Removal of disabled, abandoned, illegally parked vehicles and aircraft.

A. The director or designee may remove, or cause to be removed, from any area of the airport any vehicle, aircraft or property which is disabled, abandoned, parked in violation of these rules and regulations, or which presents an operational problem, or interferes with the safe and efficient operation of the airport, at the operator's or owner's expense and without liability for damage which may result in the course of such movement. The director or designee may remove, or cause to be removed, any vehicle which is parked more than sixty consecutive days in any parking lot, regardless of the location parked, operated by the airport, unless written permission to do so has been obtained from the director or designee.

B. No person shall, unless authorized by the director or designee, park a vehicle in any area of the airport which has been designated by signs or other means as reserved for certain persons or vehicles or restricted for certain purposes.
(Ord. No. 19007, § 1, 12-17-2019)

14.16.155 Computer non-corruption and information technology.

A. No person shall have any access to the computer and other information technology of the airport (collectively the "systems") unless authorized in writing by the director or designee and the person executes a written agreement to indemnify and hold harmless the city and airport from any and all claims whatsoever arising out of any breach (as defined below) and to follow any protocols required under any federal, state or local rules or regulations, all at its sole cost and expense in connection with the systems and/or a breach.

B. No person with access shall permit a third party to obtain access to the systems without the director or designee's prior written permission.

C. Should any person have access at any time for any reason, he or she shall ensure that such access does not compromise, adversely affect or permit unauthorized access, either directly or indirectly to, the systems (a "breach") in any way and for any reason. If the director or designee, in his or her sole good faith judgment, determines that such access either is adversely affecting the systems or has the potential to adversely affect the systems, then notwithstanding any other provision of an agreement to the contrary, the director or designee shall have the right to suspend and/or terminate immediately such access. The director or designee shall endeavor to give notice of such suspension and/or termination as expeditiously as possible.

D. The director or designee shall be immediately notified should a breach occur and provided with any and all information regarding the breach.
(Ord. No. 19007, § 1, 12-17-2019)

Article II Business Activities at Airport

14.16.160 Concessions—Lease or specific permission required—Regulation of driverless automobiles.

A. Except in the case of persons or firms doing business with tenants or subtenants of the city located on airport property or as otherwise permitted or regulated in this Code, no person who does not have a concession agreement, lease agreement or other specific permission in writing from the director or designee shall on the airport peddle sell, or rent any goods, wares, merchandise or services, or furnish taxicab or limousine service or hotel courtesy cars to any person who has not called from the airport for such service, or carry from the airport any passenger for hire in any aircraft, or conduct any student pilot training or demonstrate or sell any new or used aircraft, or

perform aircraft maintenance or any other aeronautical service such as is normally performed on airport property under lease or concession from the city; or offer to do any act prohibited in this chapter to be done.

B. No person who does not have such a concession, lease or specific permission in writing for engaging at the airport in the business of furnishing driverless automobiles, as that term is defined in Section 6.36.010, shall on the airport:

1. Use any loudspeaker or public address system for or in connection with the renting or delivery of any driverless automobile; or

2. Post, distribute or display signs, advertisements, circulars or any other printed or written matter denoting such business activity except signs painted on the motor vehicle used to pick up and drop off passengers at the front of the terminal building; or

3. Enter for the purpose of assisting customers in the terminal building or any building occupied by a commercial aviation operator as tenant.
(Ord. No. 19007, § 1, 12-17-2019)

14.16.161 Customer facility charge.

A. A customer facility charge ("CFC") as set forth in Schedule C of the city's annual budget resolution per transaction day (as defined below) on each customer renting a motor vehicle from an on-airport or off-airport vehicle rental concessionaire shall be charged. The amount of the CFC may be adjusted from time to time by the city in its annual budget resolution approved by the city council.

B. "Motor vehicle" means a driverless automobile as that term is defined in Section 6.36.010 of the El Paso City Code.

C. "Transaction day" means, with respect to rentals of motor vehicles, up to twenty-five-hour period or fraction thereof for the first transaction day and successive twenty-four-hour periods (or fractions thereof) for each successive transaction day.

D. The on-airport vehicle rental concessionaires shall collect the CFC from their customers on behalf of the city. The vehicle rental concession agreement approved by the city council will govern how the on-airport vehicle concessionaire must so identify the CFC. Each on-airport vehicle rental concessionaire must charge each customer the total amount of CFCs due under the customer's contract at the time the final number of transaction days are determined under the contract, and must remit such total amount of the CFCs pursuant to the terms and conditions of its vehicle rental concession agreement.
(Ord. No. 19007, § 1, 12-17-2019)

14.16.162 Third party service agencies.

All third party service agencies shall obtain a license agreement prior to commencing activity at the airport. Such license shall be renewed annually. Such fees are as established as outlined in Schedule C of the annual budget resolution.

For the purpose of this section "third party service agencies" means any consultant, agent, business, advisor, or independent contractor who renders services to the airport and is not otherwise defined under these minimum standards.
(Ord. No. 19007, § 1, 12-17-2019)

14.16.163 Violation—Penalty.

Any person violating this article shall be deemed guilty of a misdemeanor and punished as provided in Sections 1.08.010 through 1.08.030.
(Ord. No. 19007, § 1, 12-17-2019)

Article III Off-Airport Rental Car Businesses

14.16.300 Definitions.

As used in this title:

"Gross receipts" means all moneys or other consideration paid or payable to an off-airport rental car business, whether for cash or credit and without any deduction for credit card discounts and whether the same shall be paid or unpaid. "Gross receipts" shall include the following: Net time and mileage charges by the business for the rental of automobiles, or any other vehicles, regardless of the ownership, area, fleet or location

assignment of said automobiles or vehicles and regardless of where said automobile or vehicle is returned. When a vehicle originally rented to a customer by the business is exchanged for another vehicle at another location of the business, as part of the same or continuous transaction, the transaction shall be considered includable in gross receipts; and charges to customers for supplies, merchandise or services. Excluded from "gross receipts" are the following: One-way drop-off charges; and amounts of any sales or similar taxes imposed by federal, state, county or City laws which are separately stated to and paid by the business, whether currently levied or hereinafter levied or imposed, and directly payable to the taxing authority by the business. No deduction shall be allowed from gross receipts for the payment of franchise taxes or taxes levied on the activities, facilities, equipment or property of the business, either real or personal; and sums received from the sale of used vehicles from the fleet of the business; and amounts of gratuities paid or given by customers to the employees of the business; and sums paid by customers to the business for its elimination of customer's liability to the business for damages to the rental vehicle, provided that said sum is separately stated to and paid by the customer (the aforementioned being commonly referred to as collision damage waiver (CDW) charge or loss damage waiver (LDW) charge); and sums received from customers or insurance carriers for the damage, loss or conversion of the vehicles of the business; provided, however, that any sums received representing reimbursements to the business in lieu of rentals for said vehicle shall not be so excluded; and sums received from the sale of Mexico trip insurance; and sums paid by customers to the business which represent an amount the customer is obligated to pay when the customer does not return the vehicle with the required amount of fuel. Said sum to be excluded must be separately stated to and paid by the customer; the fuel for which the customer may be charged shall be of the grade recommended for use in said vehicle by the manufacturer; and the charges for said fuel shall be at the prevailing rate charged by the business at its other locations; and sums received from transactions in which a customer places a reservation with the business for a vehicle where delivery is to occur outside the city limits of the city; and sums received from the leasing of any one vehicle to any one person or entity for a term of six consecutive months or more.

"Off-airport rental car business(es)" means a business or person which is engaged in the commercial activity of renting vehicles to the public for compensation and which does not have an in-terminal vehicle rental concession agreement with the city.

(Ord. No. 19007, § 1, 12-17-2019)

14.16.301 Permit required—Procedures.

A. Any person conducting an off-airport rental car business desiring access to the airport for the purpose of conducting such rental car business operation, shall first obtain from the city, through its director or designee, an off-airport rental car business permit, prior to conducting any such business on airport property. A copy of the application form for such permit shall be available in the administrative offices, El Paso International Airport.

B. An off-airport rental car business permit shall not permit such business to rent motor vehicles on airport property, to have an office or station on airport property for the rental of vehicles, to park rental cars on airport property, or to operate rental cars on airport property; and all of these actions and activities are expressly prohibited, unless specifically authorized in writing by the director.

(Ord. No. 19007, § 1, 12-17-2019)

14.16.302 Courtesy service pickup.

All off-airport rental car businesses required to operate under a permit, as provided in this chapter, shall, while on the airport, pick up and discharge passengers or baggage only in a courtesy vehicle zone designated by the director or

designee. Courtesy vehicles shall occupy said zone only for active loading and unloading, as established by the director or designee.
(Ord. No. 19007, § 1, 12-17-2019)

14.16.303 Service limited.

Off-airport rental car businesses are permitted to utilize the airport facilities and provide service to persons at the airport only through operation of a courtesy vehicle system. Transportation onto airport property of rental cars by off-airport rental car businesses will be permitted only if specifically authorized in writing by the director.
(Ord. No. 19007, § 1, 12-17-2019)

14.16.304 Permit, charges and reporting requirements.

There are established the following charges and requirements for off-airport rental car businesses:

A. An annual permit shall be a prerequisite to operation of an off-airport rental car business at the airport. City council may establish a fee for off-airport rental car business permit in the city's annual budget resolution.

B. In addition to the permit required by subsection A of this section, permittee shall pay the city a monthly charge, as defined in this chapter, derived during each month from rentals to customers picked up from the airport by off-airport rental car businesses during the month, such charge to be for the privilege of use of the airport. The charge shall be payable, not later than the twentieth day of each month, for the preceding month's receipts. The permittee shall furnish to the director of aviation or authorized designee, not later than thirty days following the end of the permit year, a report, properly certified by a certified public accountant, showing the month-to-month gross receipts derived from providing off-airport rental car services to passengers of the airport. In addition, authorized representatives of the city may, at all reasonable times and places within the city, examine or audit the permittee's books and accounts to verify that the correct monthly charges have been paid, or to require the permittee to furnish written proof of all gross receipts derived from airport-related car rental service during any month. The city retains at all times the right to require an independent audit, and if such audit shows permittee has underreported its gross receipts by two percent or more, permittee shall be responsible for paying the difference between the audited figures and what was reported by permittee, as well as the full cost of the audit.
(Ord. No. 19007, § 1, 12-17-2019)

14.16.305 Nontransferability.

The off-airport rental car business permit shall not be transferable.
(Ord. No. 19007, § 1, 12-17-2019)

14.16.306 Amendment of permit.

An annual permit is amendable at any time by the director or designee.
(Ord. No. 19007, § 1, 12-17-2019)

14.16.307 Issuance and denial of permit.

A. Within a reasonable time after submission of the application, the director or designee shall approve or deny issuance of an off-airport rental car business permit. Upon approval of an application for an annual permit by the director or designee, the director or designee shall, within a reasonable time thereafter, issue the annual permit and incorporate therein such conditions as he deems necessary. The holder shall then be authorized to operate the off-airport rental car business upon the conditions of this chapter and the permit, as may be amended.

B. The director or designee may deny issuance of an off-airport rental car business permit for good cause, which includes a finding that:

1. The applicant has failed to comply with the requirements of this Chapter or permit application;

2. The applicant has, on more than one occasion, violated the provisions of Section 14.16.160(B); or

3. The applicant has failed to provide or materially altered or omitted pertinent information in any governmental record, including an application for a permit or permit renewal; or

4. The applicant has been finally convicted of a criminal violation of any local, state or federal law, which directly relates to the duties and responsibilities of providing an off-airport car rental business or which would indicate a lack of fitness of the applicant to provide this service at the airport.

C. If the director or authorized designee denies the issuance of a permit, he shall notify the rejected applicant pursuant to the notification procedure set forth in Section 14.16.310.

(Ord. No. 19007, § 1, 12-17-2019)

14.16.308 Renewal of permit.

To obtain renewal of an annual permit, a holder shall file with the director, at least forty-five days prior to the expiration date of the annual permit, a written, sworn application for permit renewal. City council may establish a permit renewal fee in the city's annual budget resolution. Upon payment of the permit renewal fee, if any is established, the annual permit will then be renewed, subject to approval of the application by the director, unless the director determines that good cause exists for the permit renewal to be denied. For purposes of this provision "good cause" includes the items described in Section 14.16.307 above and Section 14.16.309 below.

(Ord. No. 19007, § 1, 12-17-2019)

14.16.309 Revocation or suspension of permit.

A. The director may revoke or suspend a permit, if he determines that a permit holder:

1. Has been finally convicted of a criminal violation of any state or federal law, which directly relates to the duties and responsibilities of providing an off-airport car rental business and which would indicate a lack of fitness of the applicant to provide this service at the airport; or

2. Has falsified or materially altered or omitted pertinent information in any governmental record, including an application for a permit or permit renewal; or

3. Has failed to comply with the provisions of this chapter, including the payment of the gross receipts charge, or any provision of this Code related to the conduct of rental car businesses, including any provisions pertaining to the regulation of driverless vehicles; or

4. Has failed to comply with the provisions of a permit or written agreement required by this chapter; or

5. Has failed to allow examination or audit of records required by this chapter and which are necessary to determine compliance with the provisions of this chapter, or to furnish to the airport written proof, as required by Section 14.16.304(B); or

6. Has operated the business on airport property while on suspension for a violation of this chapter.

B. The director or designee may, after compliance with the procedures set out in Section 14.16.310, regarding notice, and Section 14.16.312, regarding hearings, revoke or suspend a permit for one or more of the causes enumerated in subsections A.1 through A.6 of this section; or, if the permit holder has engaged in misconduct or any improper or wrongful behavior of a substantial nature, which is dangerous to the safety and welfare of the public, and if such misconduct or wrongful behavior directly relates to the capacity of the permit holder to provide adequate and safe services to the public or of the airport to effectively regulate its operations.

(Ord. No. 19007, § 1, 12-17-2019)

14.16.310 Notice.

If the director, or designee, denies an application for a permit, fails to approve renewal of a permit, or suspends or revokes a permit, he shall provide notice of his decision to the applicant or permit holder, within ten days of the action. Notice shall be in writing, by certified mail, return receipt requested, or by hand delivery, to the applicant or permit holder.

(Ord. No. 19007, § 1, 12-17-2019)

14.16.311 Emergency suspension.

Notwithstanding any of the procedures set out in this chapter, the director or designee may immediately and without notice:

A. Suspend a permit at any time that insurance, or proof of self-insurance, if self-insurance is permitted by state law, required under this chapter lapses, terminates or is otherwise not in force. Such suspension shall remain in effect until satisfactory evidence is presented to the director or designee that the required insurance coverage is again in force or effect;

B. Suspend a permit at any time that the transportation for hire operating authority (THOA) expires or is renewed in time; or

C. Suspend, pending notification and a hearing, a particular vehicle from operating on airport property, in any situation in which the vehicle is in such condition as to pose an immediate threat to the health or safety of any person riding in said vehicle or any person using the airport. The suspension shall remain in effect until the unsafe or unhealthy condition has been corrected to the reasonable satisfaction of the director or designee.
(Ord. No. 19007, § 1, 12-17-2019)

14.16.312 Hearing.

Any applicant or permit holder which receives notice pursuant to Section 14.16.310 or Section 14.16.311 of this chapter and wishes a hearing before the director or designee for reconsideration of his decision, shall forward a written request to the director or designee within ten days of notification of a decision adverse to the applicant or holder.
(Ord. No. 19007, § 1, 12-17-2019)

14.16.313 Appeals.

Any applicant or permit holder may appeal the denial, suspension, or revocation of a permit after a hearing with the director of designee under this Article III, to the city manager as provided in this section.

1. Within ten business days of a hearing for reconsideration of a denial, suspension, or revocation under Section 14.16.312 above, the director, or designee, shall prepare a report indicating the reasons for the denial, suspension, or revocation and shall provide a copy to the applicant or permit holder. The director or designee's decision is final unless within ten business days from the date of receiving such report, the applicant or permit holder files with the city clerks a written appeal to the city manager specifying the reasons for the appeal. Said appeal shall also include a written rebuttal to the director's report.

2. The city manager or designee shall review the report and the appellant's rebuttal. The city manager or designee may allow the appellant to make an oral presentation or submit additional rebuttal. The city manager or designee shall make a ruling on the appeal within a reasonable period of time after the appeal has been filed.

3. The city manager or designee shall sustain, reverse or modify the action of the director or designee and shall notify the appellant of the decision in writing. The decision of the city manager or designee is final.
(Ord. No. 19007, § 1, 12-17-2019)

14.16.314 Violation—Penalty.

A. A person commits an offense hereunder, if he:

1. Operates an off-airport car rental business or courtesy vehicle of such business at the airport without a permit; or

2. Forges, alters or counterfeits an off-airport rental car business permit; or

3. Possesses a forged, altered or counterfeit off-airport rental car business permit.

B. Any person committing an offense under this subsection shall be deemed guilty of a misdemeanor and punished as provided in Sections 1.08.010 through 1.08.030 of this Code.

C. Prosecution for an offense under this chapter does not prevent the use of other enforcement remedies or procedures, including injunctive relief, applicable to the person charged with the conduct involved in the offense.

D. If any provision of this chapter is held insufficient as the basis of criminal prosecution, as provided for herein, the same shall nevertheless be a ground for denial of an application, denial of renewal of a permit, or revocation or suspension of any license, permit or privilege issued under this chapter.
(Ord. No. 19007, § 1, 12-17-2019)

Article IV Ground Transportation Services

14.16.401 Statement of policy.

It is the policy of the city to provide and promote adequate and efficient ground transportation services at El Paso International Airport for the convenience of the public. To this end, the city has established a ground transportation system at the airport designed to control traffic congestion, protect the public health and safety, preserve the airport infrastructure, and provide beneficial and convenient ground transportation services to air carrier passengers and other users at the airport.
(Ord. No. 19007, § 1, 12-17-2019)

14.16.402 Definitions.

In this article:

"Certificate of registration" or "registration" means a certificate of registration issued by the director under Section 14.16.405 of this article that authorizes the operation of a courtesy vehicle or transportation-for-hire vehicle at the airport.

"Concession contract" means a contractual agreement between the city and another person for the provision of car rental and parking services at the airport, under which the city receives a minimum monthly payment or percentage of the gross revenues received by the contractor for such services.

"Courtesy vehicle" means any vehicle used to offer or provide courtesy vehicle services.

"Courtesy vehicle service" means the provision of free transportation to customers by or for a business as an accessory to the main activities of the business.

"Decal" means a decal issued by the director under Section 14.16.406 of this article authorizing a courtesy vehicle or transportation-for-hire vehicle to be operated at the airport.

"Director" means the city's director of aviation or the director's designated representative, including the transportation coordinator.

"Driver" means an individual who drives or otherwise controls the physical movements of a courtesy vehicle or transportation-for-hire vehicle.

"Fixed-based operator" means a person who provides full-service aircraft maintenance, aircraft rental, passenger charter flight service, or fuel operations for compensation at the airport.

"Ground transportation service" means the business of operating a courtesy vehicle or transportation-for-hire vehicle at the airport for the purpose of dropping off or picking up passengers at the airport's terminal building or other areas of the airport.

"Ground transportation vehicle" means a courtesy vehicle or transportation-for-hire vehicle that is used for performing ground transportation service at the airport.

"Holder" means a person who is granted operating authority to perform ground transportation service at the airport, and includes any person with an ownership interest in the ground transportation service.

"Lawful order" means a verbal or written directive issued by the director in the performance of official duties in the enforcement of this article and any rules and regulations promulgated under this article.

"Operate" means:

1. To own, drive, or be in control of a ground transportation vehicle at the airport; or

2. To own or be in control of a ground transportation service provided at the airport.

"Operating authority" has the definition given that term in Title 6 of this Code.

"Operator" means:

1. The owner or driver of a ground transportation vehicle; or

2. The holder of operating authority to perform ground transportation service at the airport.

"Owner" means the person:

1. Who is the legal owner of a motor vehicle;

2. To whom a motor vehicle is registered by the state; or

3. Who is leasing a motor vehicle.

"Person" means an individual; corporation; government or governmental subdivision; or agency, trust, partnership, or two or more persons having a joint or common economic interest.

"Transportation coordinator" means the person designated by the director to oversee and manage the ground transportation service operations at the airport.

"Transportation-for-hire service" has the definition given that term in Title 6 of this Code.

"Transportation-for-hire vehicle" has the definition given that term in Title 6 of this Code.

"Transportation network company ("TNC") service" means transportation pre-arranged through a TNC's digital network between points chosen by the passenger. TNC service commences when a TNC driver accepts a transportation request via the digital network and concludes when the passenger exits the TNC vehicle. TNC service is not a taxicab service or available via street hail.

"Trip" means each time passengers are picked up at the airport by a ground transportation vehicle.

"Trip fee" means the monetary amount charged per trip to the owner or operator of a ground transportation vehicle in accordance with Section 14.16.407 of this article.

(Ord. No. 19007, § 1, 12-17-2019)

14.16.403 General authority for enforcement.

A. The director shall implement and enforce this article and may promulgate and enforce written rules and regulations, not inconsistent with this article, governing the operation of ground transportation vehicles and ground transportation services at the airport as the director determines necessary to provide for the orderly, efficient, and convenient flow of traffic, to protect the public health and safety, and to manage the ground transportation system at the airport.

B. The director may issue lawful orders, not inconsistent with this article, as the director determines necessary to carry out duties under, or to affect the policy of, this article.

C. The transportation coordinator is authorized to enforce this article and all rules, regulations, and lawful orders promulgated or issued by the director under this article.

D. The director may use the director's full authority under federal, state, and local law, as well as TSA security directives, to direct, remove, or cause to be removed at the owner's expense from any restricted or reserved area, any roadway or right-of-way or other area on the airport premises, any vehicle which is: disabled, abandoned, illegally or improperly parked, or creating an airport operational issue. Any such vehicle may be removed or caused to be removed to an official vehicle impound area designated by the city. The city shall not be liable for damage to any vehicle or loss of personal property which might result from the act of removal.

(Ord. No. 19007, § 1, 12-17-2019)

14.16.404 Defenses.

It is a defense to prosecution under this article that:

A. The motor vehicle was owned, operated, or leased by:

1. A nonprofit organization and being used to carry only passengers associated with that organization, if no compensation is received from any other person for carrying the passengers;

2. An employer or employee association and being used to transport employees between the employee's homes and the employer's place of business or between work stations;

3. An air freight or cargo company utilizing air cargo terminals at the airport;

4. A fixed-based operator and being used to transport employees or customers at the airport;

5. The federal or state government or a political subdivision of the state; or

6. A school, university, organ donor company, medical service provider, or ambulance service; or

7. The ground transportation vehicle was licensed by another governmental entity and was transporting a passenger from a point outside the city to a destination inside the airport, if the ground transportation vehicle leaves the airport without receiving a passenger inside the airport.
(Ord. No. 19007, § 1, 12-17-2019)

14.16.405 Ground transportation service requirements.

A. A person commits an offense if he:

1. Performs ground transportation service at the airport without being authorized under a current, valid certificate of registration issued under Section 14.16.406 of this article; or

2. Performs transportation-for-hire service at the airport or operates a transportation-for-hire vehicle at the airport without current, valid transportation for hire operating authority under Title 6 of this Code; or

3. Violates the requirements of this Section 14.16.405.

B. All vehicles shall be no more than ten model years old. Further, the vehicle while in service shall be kept in a clean condition, free of foreign matter and of offensive odors. There shall be no litter in the vehicle or trunk or on floor mats and the upholstery and floor mats shall be kept clean and without holes or large wear spots. The vehicle shall be free from damaged fenders and body, defective paint and other conditions. All vehicles shall comply with airport, local, state and federal motor vehicle codes ordinances, regulations, statutes, standards and/or directives with respect to inspection, safety and operation of vehicles.

C. While on duty driver shall:

1. Conduct himself in a reasonable, prudent and courteous manner;

2. Maintain a sanitary and well-groomed appearance;

3. Not consume alcoholic beverages, controlled substances, or other substances which could adversely affect his ability to drive a motor vehicle;

4. Not "cruise" the airport roadways for the purpose of advertising its services or soliciting fares or passengers;

5. Obey the lawful orders and directions of all airport law enforcement personnel, any state or local law enforcement officer, and all airport officials who display proper identification;

6. Comply with posted speed limits and traffic control signs;

7. Not engage in any criminal activity; and

8. Have a valid driver's license.

D. Drivers of ground transportation vehicle shall remain in (or with) their vehicles and shall not park or leave a vehicle unattended at any curb. Unattended vehicles may be cited and removed. If drivers must park or leave their vehicles unattended, they shall park in the public parking lot or garage subject to the posted rates.

E. A driver, representative, employee, agent or operator shall not deceive or attempt to deceive the public through false or misleading representations concerning its prices or services or those of other operators.

F. Operators and drivers shall not offer or give tips, gratuities or payments of any kind to employees or agents of the city, airlines or any other business entity operating at the airport.

G. Operators and drivers shall not interfere with airport operations or activities, nor shall operators and drivers interfere with the city, or airline employees or agents in the performance of their duties.

H. Operators and drivers shall only pick up passengers in locations specifically designated for such purposes. Designated pick-up, drop-off, cueing, loading and unloading areas are subject to change from time to time, as necessary in the judgment of the director to advance the safety, security and/or convenience of airport operations.

I. Operators and drivers shall procure and maintain insurance coverage by financially responsible and qualified companies eligible to do business in the State of Texas in an amount and form that is satisfactory to the city.

J. Operators and drivers shall not perform any maintenance or repairs to their vehicles on airport property, except in an emergency to make the vehicle immediately operable. Operators and/or drivers shall pay or reimburse the city upon demand for any cleanup costs incurred by the city, caused by or relating to the operator's or driver's conduct or omission.

(Ord. No. 19007, § 1, 12-17-2019)

14.16.406 Registration of ground transportation service at the airport.

A. Registration Required; Application. To obtain a ground transportation service certificate of registration, a person must submit an application to the director on a form provided for that purpose. The applicant must be the person who will own or operate the proposed ground transportation service. The registration application must include or be accompanied by:

1. For transportation-for-hire vehicles, proof of current, valid transportation for hire operating authority permit issued by the city under Title 6 of this Code;

2. An annual registration fee in the amount specified in the City of El Paso Annual Approved Budget—Schedule C of the current fiscal year; and

3. Any other information requested by the director that is reasonably necessary to determine the qualifications of the applicant to perform ground transportation service at the airport.

B. Issuance and Denial of Registration.

1. The director shall issue a certificate of registration to the applicant, unless the director determines that the applicant:

a. Failed to comply with the requirements for receiving a certificate of registration;

b. Failed to submit a complete registration application;

c. Made a false statement as to a material matter on or in connection with the registration application;

d. Had a ground transportation service certificate of registration revoked within the twenty-four months preceding the date of application; or

e. Owes the city money relating to the operation of ground transportation service at the airport.

2. If the director approves the registration application, the applicant will receive a ground transportation service certificate of registration for each vehicle authorized to be operated in the ground transportation service. A certificate of registration and all accompanying decals must be renewed in accordance with the application procedures set forth in this section.

3. If the director determines that a certificate of registration should be denied, the director shall notify the applicant in writing that the application is denied and include in the notice the reason for the denial and a statement informing the applicant of the right of appeal.

C. Suspension or Revocation of Registration.

1. The director may suspend or revoke a certificate of registration if the director determines that:

a. The holder made a false statement as to a material matter on or in connection with the registration application;

b. The holder, or any operator of a courtesy vehicle or transportation-for-hire vehicle authorized under the holder's registration, failed to pay any fee required by this article at the time or in the manner required by this article or approved by the director;

c. The holder, or any operator of a courtesy vehicle or transportation-for-hire vehicle authorized under the holder's registration, failed to comply with any provision of this article or any rule, regulation, or lawful order promulgated or issued by the director under this article, including without limitation the requirements in Section 14.16.405.

2. The director may suspend the certificate of registration of a ground transportation service for a period not to exceed sixty days. The director may apply the suspension to all of the holder's courtesy vehicle or transportation-for-hire vehicle operations at the airport or limit the suspension to the particular courtesy vehicle or transportation-for-hire vehicle operator listed on the holder's certificate of registration who is responsible for creating the grounds for the suspension. At the end of the suspension period, the holder or the courtesy vehicle or transportation-for-hire vehicle operator, whichever applies, may resume providing courtesy vehicle or transportation-for-hire vehicle service at the airport after providing verification to the director that any deficiency for which the suspension was given has been corrected within the suspension period. Failure to correct a deficiency within the time period established by the director may result in revocation of the holder's certificate of registration.

3. The director shall notify the holder in writing of any suspension or revocation under this section. The director shall include in the notice the reason for the suspension or revocation, the scope of the suspension, the date the director orders the suspension or revocation to begin, the duration of any suspension, and a statement informing the holder and any suspended courtesy vehicle or transportation-for-hire vehicle operator of the right of appeal. The period of suspension or revocation begins on the date specified by the director or, in the case of an appeal, on the date ordered by the permit and license appeal board.

4. If the director denies issuance or renewal of a ground transportation service certificate of registration, suspends or revokes a holder's certificate of registration, or suspends the authority of a courtesy vehicle or transportation-for-hire vehicle operator to operate at the airport under a holder's certificate of registration, the applicant, holder, or courtesy vehicle or transportation-for-hire vehicle operator, whichever applies, shall immediately cease any ground transportation service at the airport and shall promptly surrender and remove any registration decal from any motor vehicle used to perform ground transportation service at the airport.

5. A holder whose certificate of registration has been revoked is not eligible to reapply for another ground transportation service certificate of registration before the expiration of twenty-four months after the date of revocation or, in the case of an appeal, the date the permit and license appeal board affirms the revocation.

D. Appeal of Denial, Suspension, or Revocation. Any person whose application for issuance or renewal of a ground transportation service certificate of registration is denied by the director, any holder whose certificate of registration has been revoked or suspended by the director, or any courtesy vehicle or transportation-for-hire vehicle operator whose authority to operate at the airport under a holder's certificate of registration has been suspended by the director may file an appeal in accordance with Section 6.04.320 of this Code. (Ord. No. 19007, § 1, 12-17-2019)

14.16.407 Fees.

A. A person performing ground transportation service at the airport shall adhere to the following regulations:

1. No vehicle may be used to provide transportation-for-hire services without a valid certificate of registration under this article.

2. A vehicle registration expires one year from the date it is issued.

3. Annual registration fee. The annual registration fee for ground transportation service is listed in the City of El Paso Annual Approved Budget—Schedule C of the current fiscal year.

4. An airport trip fee for transportation network companies (TNC) listed in the City of El Paso Annual Approved Budget—Schedule C of the current fiscal year.

B. The director shall establish rules and regulations governing the time and manner in which the fees required by this section must be paid.

C. All revenues arising out of ground transportation services at the airport shall be retained by the airport enterprise fund for airport use only. (Ord. No. 19007, § 1, 12-17-2019)

Chapter 14.20

AIRPORT VEHICULAR TRAFFIC REGULATIONS

Sections:

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14.20.020 Licenses required for vehicle and driver.

14.20.030 Movement area permission required.

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14.20.110 Operation, parking, stopping of vehicles—Director's authority.

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Article II Operation of Vehicles Outside Landing and Apron Areas

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14.20.230 Exclusions from application of article.

Article IV Parking

14.20.240 Regulations.

Article I Operation of Vehicles on Landing and Apron Areas

14.20.010 Application of provisions—Definitions.

A. The rules and regulations of this article shall apply to the operation of ground vehicles, other than aircraft, on the landing and apron areas of the airport.

B. "Movement area" means the runways and taxiways for aircraft and the areas between and adjacent to the runways and taxiways.

C. "Apron" means the area used for the loading or unloading of aircraft passengers or cargo and the fueling or servicing of aircraft.
(Ord. No. 19007, § 1, 12-17-2019)

14.20.020 Licenses required for vehicle and driver.

No person shall operate any ground vehicle on the movement or apron areas unless such person is licensed to operate such ground vehicle and passed the requisite training for ramp and/or movement area driving privileges, or unless such ground vehicle is licensed for operation or is specially authorized for operation on airport property only.
(Ord. No. 19007, § 1, 12-17-2019)

14.20.030 Movement area permission required.

No person shall operate any ground vehicle on the movement areas without first obtaining permission from the director or designee, and without having a properly equipped vehicle, demonstrated need, and driving competency evaluation as determined by the director or designee. All persons shall additionally obtain permission from the air traffic control tower before entering the movement area.
(Ord. No. 19007, § 1, 12-17-2019)

14.20.040 Obedience to traffic regulations.

Every person operating a ground vehicle on the movement area or apron areas shall obey the lawful order, signal or direction, by voice, hand or otherwise, of the air traffic control tower and operations personnel or of any airport guard or policeman.
(Ord. No. 19007, § 1, 12-17-2019)

14.20.050 Prohibitions.

A. No person shall operate any ground vehicle on the air operations area, as defined in Section 14.20.190, unless authorized to do so by the director or designee. No person shall operate any ground vehicle on the landing field except in accordance with rules and regulations promulgated by the director or designee.

B. No person shall operate any ground vehicle on any part of the landing field, in a negligent manner or while the operator is under the influence of alcoholic beverages, legal, illegal or over-the-counter medications, or when the vehicle is in an unsafe condition or equipped or loaded so as to endanger persons or property or in a manner unsafe for weather or ground surface conditions.
(Ord. No. 19007, § 1, 12-17-2019)

14.20.060 Airport ground control light signals.

All persons on the movement area shall obey the following air traffic control tower light gun signals if/when issued in the absence of positive communication with a properly-functioning radio.

Color and/or Pattern of Light Gun Signal	Meaning
Red	Stop
Flashing red	Clear runway immediately
Green or flashing green	Proceed
Alternating red and green	Use extra caution
Flashing white	Return to apron

(Ord. No. 19007, § 1, 12-17-2019)

14.20.070 Radio and other required equipment.

No person shall operate any ground vehicle on the movement area unless such ground vehicle is equipped with two-way radio in operating condition, displays in daylight hours a checked flag at least three feet square with checks on each side at least one foot square and colored international orange and white, and during hours of darkness, displays an amber overhead light of the design designated by the city for emergency vehicles.
(Ord. No. 19007, § 1, 12-17-2019)

14.20.080 Vehicles transporting explosives.

No person shall operate, stop or park on the movement area or apron any ground vehicle transporting any explosives or hazardous materials, nitroglycerin, black powder, fireworks, blasting caps or other explosives, gasoline, alcohol, ether, liquid shellac, kerosene, turpentine, formaldehyde or other flammable or combustible liquids, ammonium nitrate, sodium chlorate, wet hemp, powdered metallic magnesium, nitrocellulose film, peroxides or other flammable solids or oxidizing materials, hydrochloric acid, sulfuric acid or other corrosive liquids, prussic acid, phosgene, arsenic, carbolic acid, potassium cyanide, tear gas, lewisite, or any other poisonous substance, liquid or gas or any compressed gases, or any radioactive article, substance or material, at such time or place or in such manner or condition as to endanger unreasonably or as to be likely to endanger unreasonably persons or property.
(Ord. No. 19007, § 1, 12-17-2019)

14.20.090 Ground vehicles to yield right-of-way to aircraft—Exception.

All ground vehicles, including emergency response vehicles, responding to an emergency/alert shall yield the right-of-way to any aircraft in motion. All aircraft shall hold their positions during an emergency unless otherwise directed by the air traffic control tower.
(Ord. No. 19007, § 1, 12-17-2019)

14.20.100 Vehicles to yield right-of-way to pedestrians and aircraft.

Pedestrians and aircraft shall at all times have right-of-way over vehicular traffic. All ground vehicles shall pass to the rear of taxiing aircraft or under tow. When passengers are boarding or debarking from aircraft at the terminal, no ground vehicle shall be driven on the apron areas between the aircraft and its loading gate.
(Ord. No. 19007, § 1, 12-17-2019)

14.20.110 Operation, parking, stopping of vehicles—Director's authority.

No person shall operate, park or stop any ground vehicle in any aircraft parking area, landing area or apron area, except as authorized by the director or designee.
(Ord. No. 19007, § 1, 12-17-2019)

14.20.120 Parking in a T-hangar or adjacent paved areas.

Short-term vehicle parking is allowed within T-hangars while the aircraft is out. Ground vehicles may be parked on the pavement adjacent to the T-hangar only when the tenant is present, provided taxiway access is not blocked. A ground vehicle may not be left unattended outside the T-hangar at any time.
(Ord. No. 19007, § 1, 12-17-2019)

14.20.130 Parking of apron vehicles and equipment.

Apron ground vehicles and equipment when not in use shall be parked in the areas designated by the director or designee for such use.
(Ord. No. 19007, § 1, 12-17-2019)

14.20.140 Parking of fueling vehicles.

No person shall park any ground vehicle designed for fueling within fifty feet of any building. Fueling ground vehicles should be parked no closer than ten feet to each other.
(Ord. No. 19007, § 1, 12-17-2019)

14.20.150 Exclusion of vehicles by director or designee.

The director or designee is authorized to exclude from the airport, permanently or for a limited time, any ground vehicle violating this article, or unsafe ground vehicle, and any other ground vehicle belonging to the same owner or operated by the same operator.
(Ord. No. 19007, § 1, 12-17-2019)

Article II Operation of Vehicles Outside Landing and Apron Areas

14.20.160 Application of provisions.

This article applies to the operation of ground vehicles on parts of the airport that are not public streets or highways.
(Ord. No. 19007, § 1, 12-17-2019)

14.20.170 Operation of ground vehicles in designated areas.

No person shall operate any ground vehicle on the area described in Section 14.20.160 without permission of the director or designee, except on such driveways, parking areas or other areas as are designated by signs or markings for such operation, in which case the operator shall comply with any directions, instructions or limitations given by such signs or markings.
(Ord. No. 19007, § 1, 12-17-2019)

14.20.180 Manner of operation of ground vehicles.

No person shall operate any ground vehicle on the area described in Section 14.20.160 negligently, or in such manner as to collide with or damage any structure, fixture, vehicle or other property.
(Ord. No. 19007, § 1, 12-17-2019)

Article III Air Operations Area (AOA)

14.20.190 Defined.

The term "air operations area" or "AOA" as used in this article is as defined in 49 CFR Part 1540, and as more particularly described in the most current airport security program.
(Ord. No. 19007, § 1, 12-17-2019)

14.20.200 Traffic signs—Placement.

The director or designee is authorized to designate such areas and roads within the AOA as are suitable for the movement or parking of ground vehicles, considering the convenience and safety of aircraft and ground vehicles and of the public, and to mark such areas and roads with appropriate traffic signs.
(Ord. No. 19007, § 1, 12-17-2019)

14.20.210 Traffic signs—Obedience required.

No person shall operate or park any vehicle, other than aircraft, upon any part of the airfield or AOA not designated and marked for the use of ground vehicles, as provided in Section 14.20.200.
(Ord. No. 19007, § 1, 12-17-2019)

14.20.220 Speed limit.

A. No person shall operate any ground vehicle (except an emergency response ground vehicle when responding to an emergency/alert), other than aircraft, at a speed greater than fifteen miles per hour while within the parking and loading areas, five miles per hour when within twenty feet of an aircraft, or thirty miles per hour while in the AOA. Additionally, aircraft shall not be towed at more than five miles per hour.

B. Emergency ground vehicles while on emergency runs and official airport ground vehicles being used in the performance of official duties are excluded from this section; however, such ground vehicles shall at all times be operated in accordance with the provisions of Section 14.20.050(A).

C. For the purpose of this section, the FAA movement area is defined as runways, taxiways and other areas of the airport that are used for taxiing, takeoff and landing of aircraft, exclusive of loading aprons and aircraft parking areas; and the air operation area is defined as all areas not open to the public, including landing areas, apron areas, aircraft parking and storage areas and hangars, except to the extent that any part of the air operation area, as defined in this subsection, is within the FAA movement area.
(Ord. No. 19007, § 1, 12-17-2019)

14.20.230 Exclusions from application of article.

This article does not apply to police ground vehicles, firefighting equipment, and ambulances operating under permits of the Texas Department of State Health Services, ambulances operated by the United States government or its agencies, or ground vehicles of the airport, while operated in the performance of duty.
(Ord. No. 19007, § 1, 12-17-2019)

Article IV Parking

14.20.240 Regulations.

A. No person shall stop or park a motor vehicle at the airport except in the areas specifically established for stopping or parking by signs or markings.

B. No person shall stop or park a motor vehicle in front of the terminal building except for the loading and unloading of passengers and baggage for a period of no longer than three minutes; and no person shall leave his vehicle unattended.

C. Each vehicle parking within either the short-term or long-term parking lots shall pay a fee for such use. The fee shall be calculated according to the length of time that the vehicle has occupied the lot. No fee shall be assessed to veterans with disabilities, Purple Heart recipients, Pearl Harbor survivors, former prisoners-of-war, Congressional Medal of Honor recipients, or surviving spouses of disabled veterans for up to five consecutive days in the short-term parking lot. No fee shall be assessed to veterans with disabilities,

Purple Heart recipients, Pearl Harbor survivors, former prisoners-of-war, Congressional Medal of Honor recipients, or surviving spouses of disabled veterans in the long-term parking lot. The exemption from payment is granted at the time of the charge only by or for the transportation of such person who registered the vehicle and while displaying the applicable license plate as issued by the State of Texas or New Mexico.

D. Cell phone lots are established for the temporary parking of vehicles. The driver of the vehicle must remain with the vehicle while it is parked within a cell phone lot. Vehicles shall not occupy the cell-phone lots in excess of two hours, and shall obey all posted signage.

E. All vehicles operating for TNCs shall park only in the designated cell phone lot.

(Ord. No. 19007, § 1, 12-17-2019; Ord. No. 019552, § 1, 11-7-2023)

Chapter 14.24

COMMERCIAL AIR CARRIERS RATES AND CHARGES

Sections:

14.24.020 Applicability—Compliance required.

14.24.030 Landing fees, fuel flowage, and airline reporting procedures.

14.24.040 Terminal rentals.

14.24.050 Equipment parking rentals.

14.24.060 Security screening fee.

14.24.070 Apron use fee.

14.24.080 Parking facilities.

14.24.090 Airline equipment charges.

14.24.100 Gate use fee per turnaround.

14.24.110 International arrivals areas charges.

14.24.120 Other charges and fees, including non-signatory air carrier—Parking fee, remain overnight.

14.24.130 Daily cargo parking and building use fee.

14.24.140 Delinquent payments.

14.24.020 Applicability—Compliance required.

A. The provisions of this chapter do not apply to commercial air carriers that are signatory to an airline operating or terminal building lease agreement (collectively a "signatory agreement") with the city.

B. As a condition precedent to the right of any commercial air carrier to use the airport, the carrier shall comply with all rules and regulations promulgated by the director or designee and all ordinances of the city. Any provision in the permit, lease, or agreement inconsistent with any general provision of this title shall control over that provision of this title. Each such carrier shall be deemed to have consented to giving the director or designee access to the carrier's books, at all reasonable times, in person or by agent, to examine the records of the carrier for purposes of validating information required to be reported by the carrier to the airport under this chapter.

C. If a commercial airline carrier does not have a signatory agreement with the city, then the commercial airline carrier will be charged one hundred twenty-five percent of the most recent fees in the most recent rates and charges document prepared as per the current signatory agreement. (Ord. No. 19007, § 1, 12-17-2019)

14.24.030 Landing fees, fuel flowage, and airline reporting procedures.

A. Each aircraft operating under F.A.R. Parts 121 and 135 shall pay airport landing fees as set forth in the respective airline agreement ("signatory agreement"), or if not a party to a signatory agreement, one hundred twenty-five percent of the rates charged within the most recent signatory agreement. Such fees do not apply to flights which depart from the airport and return for emergencies, weather, or other reasons without landing at another airport.

B. In tabulating weights, the weights of each aircraft shall be the certified maximum gross landing weight as computed by the manufacturer and the Federal Aviation Administration. If the exact certified maximum gross landing weight cannot be determined, the air carrier may refer to the Burns & McDonnell Aircraft Characteristics book to report landing weight.

C. An air carrier operator that does not have a signatory agreement on file with the El Paso International Airport shall pay a non-signatory premium of one hundred twenty-five percent of terminal and landing fees as set forth in the most current annual airlines rates and charges.

D. Any person, corporation, partnership, association, or business entity of any kind who brought fuel to a fuel storage tank or who brought fuel obtained from a source not on the airport directly into any aircraft on the airport must pay the fuel flowage charge as established in Schedule C of the city's annual budget resolution, as

amended, unless otherwise determined in any respective, executed lease agreement with the city. Military aircraft conducting operations which require fueling from U.S. Government facilities and aircraft that operate under F.A.R. Parts 121 and 135 and were assessed a landing fee are exempt from fuel flowage fees.

E. As a condition precedent to the right to use and occupy the airport, each commercial air carrier shall furnish to the director or designee a report, duly certified as true and correct by the person delegated by the carrier as its official representative having custody of its records, containing the number of its flights which have landed at the airport during the preceding month, together with the manufacturer, type and landing weight of each of its aircraft landing at the airport; the volume of cargo, mail and express carried; and the number of enplaning and deplaning passengers on its flights during said month by the tenth day of each next subsequent month unless otherwise outlined in a signatory agreement. The director or designee shall have the right to prescribe and furnish forms for the making of all reports required to be made by this subsection. Any carrier under reporting or failing to report is subject to reimbursing the airport any amounts due, including interest and administrative costs.

F. After receipt of the report specified in subsection E of this section or as soon thereafter as practicable, the director or designee shall send an invoice to each commercial air carrier making a report. Payment by the carrier shall be made within thirty days of the date of the invoice unless otherwise outlined in a signatory agreement.

G. It is unlawful and a violation of this chapter for any person to operate an aircraft of a commercial air carrier unless it provides assurance satisfactory to the director or designee that the fees prescribed in this section have been or will be paid.

(Ord. No. 19007, § 1, 12-17-2019)

14.24.040 Terminal rentals.

A. Any regularly scheduled service airline (Part 121 and Part 135) operating from the terminal must sign a signatory or non-signatory agreement. Terminal rental fees shall be determined per the rates and charges document for that fiscal year or on a per diem basis.

B. Non-signatory operators, or airline operators with irregular or seasonal operations, within the terminal shall pay the non-signatory rate as determined by the rates and charges document for that fiscal year.

(Ord. No. 19007, § 1, 12-17-2019)

14.24.050 Equipment parking rentals.

Commercial air carriers shall pay the city as rent for its preferentially assigned equipment parking areas per square foot per year as determined by the rates and charges listed in Schedule C of the city's annual budget resolution, as amended.

(Ord. No. 19007, § 1, 12-17-2019)

14.24.060 Security screening fee.

Commercial air carriers shall pay the city amounts sufficient to reimburse the city for its appropriate share of the city's actual cost, plus an allowance for administrative overhead, of providing armed law enforcement support for the security screening operation as required by 49 CFR, Part 1540, 1542, and 1544. The cost of such services shall be apportioned among airlines using the secured passenger boarding areas on the basis of the share which each airline's enplaned passengers bears to the total enplaned passengers of all such airlines for such month. City shall invoice commercial air carriers monthly for such fee.

(Ord. No. 19007, § 1, 12-17-2019)

14.24.070 Apron use fee.

Commercial air carriers shall pay an apron use fee in equal monthly installments for the use of each aircraft parking position preferentially assigned to each commercial air carrier (at the passenger terminal or in cargo areas). An annual fee shall apply for each preferentially assigned aircraft parking position. Commercial air carriers shall pay a gate use fee on a per use basis for the use of common use aircraft parking positions.

(Ord. No. 19007, § 1, 12-17-2019)

14.24.080 Parking facilities.

Employees working for a tenant in the airport terminal will be provided access to vehicular parking facilities, if available, in common with other employees. Such facilities shall be located in an area designated by the director or designee. The airport reserves the right to assess a reasonable charge to tenants or its employees for such employee parking facilities.

(Ord. No. 19007, § 1, 12-17-2019)

14.24.090 Airline equipment charges.

Commercial air carriers shall pay amounts sufficient to amortize their appropriate share of the cost of equipment and tenant finishes financed by the city, including applicable maintenance and operating expenses. city shall invoice commercial air carriers for such charges.

(Ord. No. 19007, § 1, 12-17-2019)

14.24.100 Gate use fee per turnaround.

Commercial air carriers that are not parties to a signatory agreement must pay the airport a passenger gate use fee for each use of a city airport gate to any loading bridge per turnaround in the amount set by Schedule C of the city's annual budget resolution, as amended or other duly authorized resolution of city council.

(Ord. No. 19007, § 1, 12-17-2019; Ord. No. 19083, § 1, 8-18-2020)

Editor's note—Ord. No. 19083, § 1, adopted Aug. 18, 2020, changed the caption of Sec. 14.24.100 from "Loading bridge charge" to "Gate use fee per turnaround."

14.24.110 International arrivals areas charges.

Commercial air carriers shall pay a charge per deplaning passenger for the use of the common-use international arrivals area as outlined in Schedule C of the city's annual budget resolution, as amended.

(Ord. No. 19007, § 1, 12-17-2019)

14.24.120 Other charges and fees, including non-signatory air carrier—Parking fee, remain overnight.

Commercial air carriers that are not parties to a signatory agreement must pay to the airport the fees set by Schedule C of the city's annual budget resolution, as amended, or other duly authorized resolution of city council to include a parking fee for each aircraft that is parked and remains overnight at the airport.

(Ord. No. 19007, § 1, 12-17-2019; Ord. No. 19083, § 2, 8-18-2020)

Editor's note—Ord. No. 19083, § 2, adopted Aug. 18, 2020, changed the caption of Sec. 14.24.120 from "Other charges and fees" to "Other charges and fees, including non-signatory air carrier—Parking fee, remain overnight."

14.24.130 Daily cargo parking and building use fee.

Commercial air carriers that are not parties to a signatory agreement must pay to the airport the daily fee for use of any airport cargo building, and a parking fee per turnaround for aircraft parking on the cargo ramp in the amounts set by Schedule C of the city's annual budget resolution, as amended, or other duly authorized resolution of city council.

(Ord. No. 19132, § 1, 1-14-2021)

14.24.140 Delinquent payments.

Any fee, charge, rate, rental or other payment, whether due under written agreement, the provisions of this chapter or otherwise, shall be paid as of the established due date. Rentals for the exclusive use of terminal space and for preferentially assigned gate use fees shall be paid monthly in advance on the first day of each month. Payment for all other rentals, fees and charges shall be due within thirty days of the date of the invoice. Any portion of such fee, charge, rate, rental or other payment which remains unpaid after the established due date shall bear interest at either eighteen percent, or the highest rate available by law, whichever is greater, per calendar month or fraction thereof during which the payment remains unpaid. Failure to pay any past due amounts will result in loss of privilege in addition to any other remedies available at law.

(Ord. No. 19007, § 1, 12-17-2019)

Title 15

PUBLIC SERVICES*

Chapters:

15.04	**Public Utilities Generally**
15.08	**Street Rentals**
15.10	**Deployment of Network Nodes in the Right-of-Way**
15.12	**Water and Sewer System**
15.13	**Water Conservations**
15.16	**Discharges to Storm Sewers and Other Public Rights-of-Way**
15.17	**Cable Television Rate Regulations**
15.18	**Cable Television Customer Service Regulations**
15.20	**Stormwater Management**
15.22	**Water and Wastewater Impact Fees**
15.24	**Acquisition, Use, and Disposition City Property**

***Cross reference**—El Paso Water Utilities Public Service Board, Ch. 2.34

Chapter 15.04

PUBLIC UTILITIES GENERALLY

Sections:

15.04.010 Facts and evidence at hearings—Tendering sufficiently to support fact findings.
15.04.020 Facts and evidence at hearings—Tendering sufficiently to support claims relevant to rates.
15.04.030 Facts and evidence at hearings—Tendering prior to tendering to court.
15.04.040 Facts and evidence at hearings—Failure to tender.
15.04.050 Facts and evidence at hearings—Rate order binding with or without.
15.04.060 Facts and evidence at hearings—Rate order effective regardless of petition to tender.
15.04.070 Cost of investigation—Utilities responsibility to pay.
15.04.080 Cost of investigation—Submission of statements required—Notice of filing and hearing.
15.04.090 Cost of investigation—Examining statement at hearing—Time for payment.
15.04.100 Cost of investigation—Maximum annual amount.
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15.04.130 Use of ducts—Constructing for city.
15.04.140 Books, records and accounts—Maintenance of required.
15.04.150 Books, records and accounts—Refusal to maintain—Forfeiture of franchise.
15.04.160 Books, records and accounts—Refusal to maintain—Penalty.
15.04.170 Meter reading to be furnished customer.
15.04.180 Permit to turn utility on required.
15.04.190 Consent required to attach telephone apparatus to poles.
15.04.200 Permit to interfere with pipes required.

15.04.010 Facts and evidence at hearings—Tendering sufficiently to support fact findings.

Public utilities, after due notice, and on hearing before the city council in matters of regulation, including the setting of rates or charges for public utility service, shall tender in evidence data, facts and information necessary to the determination of fact findings supporting such rate or regulatory order. (Prior code § 21-1)

15.04.020 Facts and evidence at hearings—Tendering sufficiently to support claims relevant to rates.

Public utilities shall tender at hearings on rate matters, evidence on the reasonableness of all claims relied upon by them in connection with the rate base, expenses, revenues depreciation, rate of return, all appropriate allocations thereof, inter-related corporate transactions, and other necessary factors and elements constituting the basis of a rate order. (Prior code § 21-2)

15.04.030 Facts and evidence at hearings—Tendering prior to tendering to court.

Public utilities shall first exhaust the administrative remedy afforded them and assist the city council to exhaust the administrative function involved, by first tendering, on hearing before the city council, such evidence prior to tendering it to any court on appeal in contesting the validity of any rate or regulatory order promulgated pursuant to the hearing. (Prior code § 21-3)

15.04.040 Facts and evidence at hearings—Failure to tender.

Upon failure of any public utility to make available evidence as provided herein, the administrative function shall not have been exhausted, and it shall be precluded from thereafter submitting such evidence to the city council in the same cause at any extended or subsequent hearing, except pursuant to good cause shown, as, for the introduction of newly discovered evidence not initially introduced through no fault of the utility. (Prior code § 21-4)

15.04.050 Facts and evidence at hearings—Rate order binding with or without.

A rate order of the city council, which without regard to evidence the public utility failed to tender on hearing, is reasonable, shall be conclusively binding on the public utility. (Prior code § 21-5)

15.04.060 Facts and evidence at hearings—Rate order effective regardless of petition to tender.

A rate order of city council shall be operative as of the date of its passage, and its effectiveness shall not be suspended by extended or subsequent hearings held on petition of the public utility for the purpose of tendering evidence which it theretofore failed to tender, notwithstanding an opportunity to do so. Such order shall continue operative until it shall have been duly amended pursuant to additional or amended findings of the city council. (Prior code § 21-6)

15.04.070 Cost of investigation—Utilities responsibility to pay.

Whenever the city council, in a proceeding upon its own motion, upon complaint, or upon application to it, shall deem it necessary and proper, in order to carry out the powers and duties granted and imposed upon it by the laws of the state and Charter and ordinances of the city, to investigate the operations, service, practices, accounting records, rates, charges and regulations of a public utility, or to make valuations or revaluation of the property of any public utility, and when such finding of necessity and propriety by the city council shall be reasonable and warranted by existing facts and conditions, such public utility shall be charged with and pay to the city the actual cost of such investigation, valuation or regulation, including the compensation of persons temporarily employed for such purposes, as are reasonably attributable to such investigation, valuation or regulation. (Prior code § 21-7)

15.04.080 Cost of investigation—Submission of statements required—Notice of filing and hearing.

The city comptroller shall prepare and submit to the city council an itemized statement of such actual cost of such investigation, valuation or regulation. The city council shall, either at the conclusion of the investigation, valuation or regulation, or from time to time during its progress, cause notices to be served upon such public utility of the submission and filing of such itemized statement, and of a hearing to be held thereon, which such notice shall state the time and place of such hearing. (Prior code § 21-8)

15.04.090 Cost of investigation—Examining statement at hearing—Time for payment.

At such hearing the city council shall examine the itemized statement filed and submitted by the city comptroller, shall accord the representatives of such utility a full and fair hearing concerning the accuracy and reasonableness of such itemized statement, and shall determine and fix by resolution the actual costs of such investigation, valuation or regulation to be paid by such public utility for each calendar year. Such public utility shall pay the amount of such actual costs within thirty days from the date of such resolution. (Prior code § 21-9)

15.04.100 Cost of investigation—Maximum annual amount.

The total amount which may be charged by the city to any public utility under authority of Sections 15.04.070, 15.04.080, 15.04.090 and 15.04.110 in any calendar year shall not exceed two percent of such public utility's gross operating revenues derived from local, intrastate utility operations in the last preceding calendar year. (Prior code § 21-10)

15.04.110 Cost of investigation—Interest on unpaid amount.

The amount assessed against a public utility under Sections 15.04.070 through 15.04.100 not paid within thirty days from the date of the resolution fixing such assessment shall draw interest at the rate of six percent per annum until paid. (Prior code § 21-11)

15.04.120 Use of ducts—Permitting city to use those existing.

All public utilities operating within the city shall permit the city to use, free of charge, any existing ducts constructed under the streets and sidewalks of the city not now used by the utility, and shall likewise permit the city to use, free of charge, any ducts of such utility where same does not interfere with the use now made of such ducts by utilities. (Prior code § 21-12)

15.04.130 Use of ducts—Constructing for city.

Hereafter any utility operating within the city which constructs underground ducts for conducting wires, shall at the same time construct for the use of the city, and without any charge whatsoever to the city, one additional duct of the same dimension as those used by the utility; and for such duct so constructed for the city, the city shall be required to pay no charge or rental, and such duct shall be maintained by the utility without any cost to the city. (Prior code § 21-13)

15.04.140 Books, records and accounts—Maintenance of required.

In order to aid and assist the city council in the performance of its duty in regulating public utilities which operate within the city and the rates charged by them, every person engaged in business as a public utility within the city shall keep and maintain at all times within the city, either the original or true copies of all books, records and accounts kept by such utility in anywise relating to the properties, operation and annual revenues and expenses of such utility in the city, and necessary or proper for consideration in fixing valuations for determining rates and the amount of return on utilities' investments serving the city. (Prior code § 21-14)

15.04.150 Books, records and accounts—Refusal to maintain—Forfeiture of franchise.

Refusal of any person engaged in business as a public utility, to keep and maintain in the city books, records and accounts as required in Section 15.04.140 shall constitute a ground of forfeiture of the franchise granted such person by the city and all rights and privileges acquired thereunder, and the city council shall have the power upon such refusal to declare by resolution or ordinance such forfeiture and suit may be instituted by the city in a court of competent jurisdiction for the purpose of having such forfeiture judicially declared. (Prior code § 21-15)

15.04.160 Books, records and accounts—Refusal to maintain—Penalty.

In addition to the refusal to comply with the terms of Sections 15.04.140 and 15.04.150 constituting a ground for forfeiture of the franchise as aforesaid, any person or corporation violating any provision of Sections 15.04.140 and 15.04.150 shall be deemed guilty of a misdemeanor, and upon conviction thereof shall be fined not less than one hundred fifty dollars and not more than two hundred dollars for each violation, and each day that such person refuses to

keep and maintain the books, records and accounts required in Section 15.04.140 shall constitute a separate offense. (Prior code § 21-16)

15.04.170 Meter reading to be furnished customer.

Every person supplying gas or electric light or power within the city shall, when the customer is furnished through a meter and at a meter rate, give to the consumer on monthly bills rendered, a true statement of the reading of the meter at the beginning of the period which the bill covers, as well as at the end thereof, in plain and intelligible words and figures. (Prior code § 21-18)

15.04.180 Permit to turn utility on required.

No person shall turn on the water, gas or electricity supply for any person from whom the supply has been turned off by the supplier without first obtaining a permit to do so from the supplier. (Prior code § 21-19)

15.04.190 Consent required to attach telephone apparatus to poles.

No person shall attach any wireless telephone or telegraph apparatus, wire, metal, wood or other substance to any telegraph, telephone, electric light, electric railway or power wire, crossarm or pole or its attachments belonging to another person, without the consent of such person given in writing. (Prior code § 21-17)

15.04.200 Permit to interfere with pipes required.

No person, not duly authorized by the city, shall in any way interfere with any main or service pipes of a person supplying water or gas, without first obtaining a permit from the supplier. (Prior code § 21-20)

Chapter 15.08

STREET RENTALS

Sections:

15.08.010 Purpose.

15.08.011 Definitions.

15.08.012 Application for franchise.

15.08.013 Assignment of franchise.

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15.08.015 Payments by operators of cable television systems.

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15.08.030 Authority to examine records.

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15.08.050 Payment—Dates—Amount.

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15.08.080 Examination and inspection of installations.

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15.08.110 Compliance with other provisions.

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15.08.130 Right-of-way used by certificated telecommunications providers.

15.08.140 City wayfinding program.

15.08.150 Shared mobility devices.

15.08.160 Mobile billboards.

15.08.010 Purpose.

The rental for the privilege of using the streets, alleys, highways, easements and public places of the city provided for in this chapter is not charged as a tax but is made for the privilege now enjoyed and to be enjoyed by such persons of using the streets, easements, alleys and other public ways of the city in the conduct of their respective businesses; and such charges are additional to all ad valorem and franchise taxes and to all taxes of every nature whatsoever against the persons mentioned herein, and are additional to any payments provided for in the franchise of any such persons, and to any payments or free service now being supplied to the city by any such persons, whether provided for by franchise or by contract or agreement, express or implied, or by the provisions of any law or ordinance requiring the same; but such charges are not additional to any occupation tax paid to the city based on a percentage of the gross receipts of any such persons, nor additional to any gross receipts tax now being paid to the city by any such persons, whether by ordinance, contract or agreement, but the amount of the rental charge herein provided for shall be such that when added to the amount of any such occupation tax measured by a percentage of gross receipts or by gross receipts tax or charge being paid by any such persons shall amount to a total of two percent of the gross receipts received by such person from its business conducted in the city for the preceding year. (Prior code § 21-25)

15.08.011 Definitions.

These definitions apply throughout this chapter.

A. "Appeals official" means the city manager or a deputy city manager as designated by the city manager.

B. "Downtown improvement area" means any area that lies within the boundaries of the downtown plan area as described in the Downtown 2015 Plan adopted by city council on October 31, 2006. A map of the downtown plan area is on file with the city clerk and is also available through the office of the downtown management district.

C. "Permit official" means the person or person designated by the city manager as being re-

sponsible for issuing permits, licenses or making any other authorization provided for under this article.

D. "Cincinnati commercial district" means the commercial district on Cincinnati Avenue bounded by N. Mesa Street and N. Stanton Street.
(Ord. No. 17676, § 1, 11-15-2011; Ord. No. 18382, §§ 1a), b), 7-7-2015; Ord. No. 18785, § 1, 5-1-2018)

15.08.012 Application for franchise.

A. All persons who desire to obtain a franchise for long term use of the city rights-of-way for conducting business within the city shall apply for a franchise. An application packet may be obtained from the city clerk. The application shall be verified by oath of the applicant or the duly authorized representative of the applicant, filed with two complete copies of the application and exhibits, filed with the city clerk and shall, among other requirements, identify the nature of the proposed use of city rights-of-way, the nature of the applicant's business and organization, and the applicant's authorized representative. The applicant shall also submit with the application a description of the project and the proposed encumbrances. The city clerk shall forward one copy of the application to the city manager and one copy of the application to the office of the city attorney.

B. Appropriate representatives of the city attorney's office and the designees of the city manager will schedule a preliminary meeting with the applicant's authorized representative.

C. After the preliminary meeting, and before the application shall be processed further, the applicant shall be required to pay by certified check a nonrefundable application fee of five thousand dollars for the city's costs of reviewing the franchise application, conducting appropriate investigations and other associated administrative costs. Payment of the nonrefundable application fee does not guarantee that the applicant will be granted a franchise.

D. The city shall schedule a public hearing at which the city council shall receive evidence concerning, but not limited to, the following:

1. The applicant's qualifications to render its proposed services;

2. The applicant's qualifications to adequately and safely maintain the public rights-of-way;

3. The effect which applicant's proposed use of the rights-of-way will have upon the public's use of the rights-of-way;

4. The applicant's financial responsibility and ability to meet the proposed terms of the franchise; and

5. Any other relevant facts.

E. The city council shall hear relevant testimony and receive relevant evidence from the city departments and the public.

F. At all times, the burden of proof shall be upon the applicant to establish that the proposed use of public rights-of-way is in the public interest and that the applicant is a responsible business entity.

G. The city council may grant the franchise and determine the terms and conditions by which it will be granted, or may refuse to grant it based upon the evidence presented at the public hearing.

H. Where the applicant is currently providing the proposed service under a franchise previously granted by city council, and city council finds that all relevant facts about the applicant are known to city council, city council may waive the requirements of this section. (Ord. 15856 § 1, 2004; Ord. 12538 § 1, 1995; Ord. 12241 § 1 (part), 1995)
(Ord. No. 17393, § 4, 8-24-2010, eff. 9-1-2010)

15.08.013 Assignment of franchise.

A. Whenever a franchise by its terms requires the city council to approve assignment of a franchise to a third party, a franchisee and proposed assignee who wish to effectuate the assignment of a city-issued franchise shall submit to the city a written application requesting approval of the assignment of the franchise. The application packet may be obtained from the city clerk. The application shall be completed in its entirety prior to acceptance and consideration by the city. The franchise assignment application shall be verified by oath by both the franchisee, or the duly authorized representative of the franchisee, and the proposed assignee, or the duly authorized representative of

the franchisee, and filed with two complete copies of the franchise assignment application and exhibits with the city clerk. The applicant shall, among other requirements, identify the nature of the proposed use of city rights-of-way, the nature of the applicant's business and organization, and the applicant's authorized representative. The city clerk

shall forward one copy of the application to the office of the city attorney and one copy of the application to the city manager.

B. Any person who applies for city council approval of assignment of a franchise or any rights thereunder shall pay a nonrefundable franchise assignment application fee of five thousand dollars. Payment of the nonrefundable franchise assignment application fee does not guarantee that the application for assignment of the franchise will be approved by city council.

C. The city shall schedule a public hearing at which the city council shall receive evidence concerning, but not limited to, the following:

1. The proposed assignee's qualifications to render its proposed services;

2. The proposed assignee's qualifications to maintain the public rights-of-way adequately and safely;

3. The proposed assignee's financial responsibility and ability to meet the terms of the franchise; and

4. Any other relevant facts.

D. At all times, the burden of proof shall be upon the proposed assignee to establish that the continued use of public rights-of-way is in the public interest, that the proposed assignee is a responsible business entity and that the proposed assignee is willing and capable of assuming the duties and responsibilities of the franchisee.

E. The city council may approve the assignment and determine the terms and conditions by which it will be approved, or may refuse to approve the assignment based upon the evidence presented at the public hearing. (Ord. 15856 § 2, 2004; Ord. 12241 § 1 (part), 1995)

15.08.014 Falsification of information.

A. It is unlawful for an applicant, franchisee or proposed assignee to provide false information to the city in its attempt to secure from the city a franchise or the approval of a franchise assignment.

B. Information presented to the city by the applicant, franchisee or proposed assignee which is false shall constitute grounds by which the city may deny the grant of a franchise or the approval of a franchise assignment.

C. A franchise which is granted or a franchise assignment which is approved by the city based upon information contained in an application or which is otherwise presented to the city by the applicant, franchisee or proposed assignee which is false of which the city had no knowledge at the time a franchise was granted or a franchise assignment was approved may be terminated by the city. (Ord. 12241 § 1 (part), 1995)

15.08.015 Payments by operators of cable television systems.

The provisions of this chapter apply to any person who enjoys the privilege of using the streets, alleys, highways, easements and public places of the city for the installation, operation and maintenance of a cable television system, except that the amount of payment and dates for payment and reporting shall be as required by franchise agreement between the city and such person. (Ord. 8836, 1986)

15.08.020 Gross receipts—Reporting requirement.

All persons using or maintaining any telegraph, telephone, electric light or other poles, gas pipelines, pipes and other fixtures in any of the streets, highways, easements, alleys, parks or other places within the city shall on the first day of August of each year file with the city clerk a sworn report showing the gross receipts from the business conducted by such persons within the city for the preceding year ending on the thirtieth day of June. (Prior code § 21-21)

15.08.030 Authority to examine records.

The city council may when it may see fit have the books and records of the person rendering the statement required in this chapter examined by a representative of the city to ascertain whether such statement is accurate, but nothing in this chapter shall be construed to prevent the city from ascer-

taining the facts by any other method. (Prior code § 21-22)

15.08.040 Penalty for refusal to make report.

Every person and the local manager or agent of every such person or corporation failing or refusing to make the report required by Section 15.08.020, or failing or refusing to allow the examination provided for in Section 15.08.030, shall upon conviction in the corporation court of the city be fined in any sum not to exceed one hundred dollars and every day's failure or refusal, as mentioned in this section shall be deemed a separate offense. (Prior code § 21-31)

15.08.050 Payment—Dates—Amount.

Upon the first day of August of each year every person occupying or using streets, highways, easements, alleys, parks or other public places in the city with poles, pipes and for other fixtures shall as a condition to such further occupancy pay to the city annually for such privileges a rental equal to two percent of the gross receipts received by such person from its business conducted in the city for the preceding year, which sums shall be paid to the city. To the gas and electric utilities, the two percent rental charge shall apply only to the gross receipts from the sales of gas and electricity to customers within the city. As to telephone utilities, the two percent rental charge shall apply only to the gross receipts from the sale of local exchange service to customers within the city. Such payment shall be made by electronic funds transfer to the city depository account if the city comptroller so directs on or before July 1st. (Ord. 12538 § 2, 1995; prior code § 21-23)

15.08.060 Payment—Receipt.

Upon receipt of the above rental by the city, the city clerk shall deliver to the person paying the same a receipt for such rental, which receipt shall authorize such person to use and occupy the streets and highways, easements, alleys, parks and other public ways of the city in carrying on its business for twelve months from the first day of August of such year. (Prior code § 21-24)

15.08.070 Penalty for nonpayment.

Every person who shall operate any business without the payment of the rentals provided for herein shall also pay a late fee for each day that such business shall conduct such business using and occupying the streets, easements, alleys or other public ways of the city without the payment of the rentals. This fee shall be calculated at the prime rate (the rate that the nation's largest banks charge their most creditworthy customers) times the amount of street rentals due and owing to the city times the number of days that the street rentals are late, and shall be paid in addition to the rentals provided for herein. (Ord. 12538 § 3, 1995: prior code § 21-30)

15.08.080 Examination and inspection of installations.

The city fire marshal, building inspector, electrical inspector, police officers and such other persons designated by the city, shall have power and it shall be their duty to examine and inspect from time to time all telegraph, telephone, electric light or other poles, gas pipelines, pipes and other fixtures in the public places within the city for the purpose of seeing that all of same are in a safe and suitable condition, and whenever any such item is found to be unsafe or unsuitable for the purpose for which it is used, the person using, possessing or maintaining same shall be notified and required to place same in a safe and suitable condition. (Prior code § 21-29)

15.08.090 Enactment of additional regulations.

The city reserves the right to put into effect at any time other restrictions and regulations as to the erection and maintenance of poles, wires, pipes and other appurtenances in the streets, easements, alleys and other public ways of the city and from time to time to require such poles, pipes, wires and other property equipment and fixtures as it may deem proper to be removed and to require wires to

be run in conduits on such terms as the city may deem proper. (Prior code § 21-28)

15.08.100 Requirements not a grant of franchise.

This chapter does not grant a franchise to any utility or person to use the streets, easements, alleys and other public ways and shall never be so construed by the courts or otherwise, and the city reserves the right to cancel the privileges granted hereunder and refund the unearned rentals paid to the city; and the payment of the charges herein provided for shall not be construed as a waiver of any rights granted any such utility under the constitution and laws of the state or of the United States, nor to prejudice any claim thereof. (Prior code § 21-27)

15.08.110 Compliance with other provisions.

Nothing in this chapter is intended to relieve any person of any condition, restriction or requirement imposed by any law or ordinance of the city. (Prior code § 21-26)

15.08.120 Special privilege licenses and permits.

A. Where applicable. The city may grant a special privilege license or permit for use of public right-of-way for specified uses. For purposes of this section, the term "public right-of-way" means the area within a public street or alley, including the sidewalk, parkway and roadway surface, whether paved or unpaved, and areas within public easements or rights-of-way for drainage or other purposes. Where a use is proposed on public right-of-way designated as a state or federal highway or road, approval from the Texas Department of Transportation (TXDOT) shall be required prior to approval by the permit official. Permanent encroachments on state highways shall be prohibited.

1. General authority.

a. City council has final authority over special privilege licenses (hereinafter called "licenses") under this section. Assignments and renewals may be granted administratively by the city manager.

b. The permit official as defined in Section 15.08.011 (Definitions) has final authority over special privilege permits and renewals (hereinafter called "permits") under this section.

2. The permit official shall require recording of instruments granting rights under this chapter in the official public records of real property of the county in which the land is situated. Applicant shall pay the recording cost.

3. Terms. Licenses and temporary permits have stated durations and are terminable according to the terms specified within the license or permit granting the use.

4. Grantees of licenses or permits under this section must maintain any structure, covering or appurtenance and the accompanying structural members extending over, under, or on public right-of-way, or other city property in good repair and condition and shall not create a nuisance or safety hazard therefrom. All such encroachments, when constructed, repaired or renovated, shall comply with all applicable codes of the City of El Paso as adopted and as may be amended. The city reserves the right to remove structures not properly maintained within the public right-of-way at grantee's expense.

5. Grantees of licenses or permits under this section shall indemnify, defend and hold harmless the city, its officers, agents, servants and employees for and against all claims, causes of action, liability, damages or expenses (including but not limited to attorney fees and costs) for any damage or loss of property, illness, injury, physical or mental impairment, loss of service, or death to any person arising out of or related to the license or permit. This section controls even if the agreement provides otherwise, unless an ordinance expressly states that city council intends to override this section as to the particular use by the particular applicant. The indemnity specifically covers the city's own negligence, whether joint or sole. Entities that may not lawfully grant indemnities or may not lawfully be required to do so by the city need not grant the indemnity provided for in this section.

6. Licenses and permits granted under this section shall not relieve the applicant of complying with any other approvals, permits, or licenses required by the city or other governmental agencies. No permit or license shall be granted if the use impairs the primary public purpose of the public rights-of-way.

7. Terms and conditions—Right of termination reserved by city.

a. The permit official retains the right to terminate a license or permit whenever in its judgment revocation is necessary to secure efficiency of public service at reasonable rates or to assure that the property is maintained in good order throughout the term of the license.

b. Upon termination of the license or permit, at the option of the city, Grantee(s) shall remove any improvements and return the right-of-way to its original condition, or the city shall have the option of accepting the improvements, such improvements shall become the property of the city.

c. Breach by grantee(s). If grantee(s) fails to fulfill any of the conditions stated in the license ordinance, city council may terminate the license or permit after reasonable notice and hearing.

8. No structures shall be placed on any El Paso Water Utilities water meters, water valves, sanitary sewer manhole covers nor within a five-foot radius of any existing fire appurtenance.

B. Application required. To acquire licenses or permits under this chapter, an applicant shall submit the following to the permit official, and follow the procedures prescribed by this section.

1. One application for a license or permit shall be made in writing or submitted electronically on a form prescribed by the permit official, which must be completed in accordance with the instructions provided on/with the application;

2. One location map, accurately outlining the public rights-of-way or easement(s) upon which an encroachment is proposed.

3. A digital copy of the proposed plan of the public right-of-way or public easement, drawn to scale, showing the following:

a. Size, location, arrangements of existing structures and improvements on the public rights-of-way or easements;

b. Size, location, arrangements and dimensions of proposed improvements to be located on the public rights-of-way or easements;

c. Elevations or perspective of the buildings showing all existing and proposed encroachments;

4. Proof of ownership (warranty deed, title commitment, etc.).

5. A sealed written metes and bounds description and survey, of the public rights-of-way or easements if permanent structures are proposed.

6. A transmittal letter including specific information, special circumstances or conditions, which apply to the request.

7. A certificate of liability insurance or self-insured affidavit in accordance with subsection G (insurance required) of this chapter.

8. Upon review for completeness and acceptance of the application by the permit official, the applicant shall pay the established processing fee for the special privilege license or permit as prescribed in subsection F.1 of this chapter. The processing fee is non-refundable.

C. Procedure for a license. The application and related materials are distributed to the affected city departments, which will make recommendations for approval or denial of the request within two weeks of the date of distribution.

1. Upon an approval recommendation by the departments, the permit official shall prepare an ordinance containing the terms and conditions of the license. Once signed by the applicant(s), the ordinance will be introduced and scheduled for public hearing for city council consideration.

2. Upon denial recommendation of the departments, no ordinance will be prepared, and a written notice of denial of the license request will be provided to the applicant

3. Appeals process.

a. An applicant may appeal the denial of an application in writing within ten calendar days after notice of the denial has been received, by submitting a written request to the permit official. The notice of appeal must contain a written statement of the reasons the final decision is erroneous or any other documents supporting the position of the appellant.

b. Within thirty calendar days of receipt of the appeal, the permit official shall present the appeal to city council. All documents submitted by the appellant shall be provided to city council along with any documentation the permit official deems relevant for rendering a decision. The applicant shall have the right to be present and address the city at said city council meeting.

c. The city council may deny the appeal for a license or may direct the preparation of the ordinance. City council's decision to grant a license or deny the appeal shall be based solely on the standards set forth in this chapter. The decision of the city council is final.

4. Approval by city council. If, in the judgment of city council, the requested use is not inconsistent with and does not unreasonably impair the public use of the right-of-way, city council may, by ordinance, approve the license. As an express condition of the license, city council may impose development standards to mitigate the encroachment onto public right-of-way, to improve safety and aesthetics, and/or to insure compatibility with adjacent structures and uses.

D. Procedure for a permit.

1. Permit applications and related materials will be forwarded to the affected departments, which will make a recommendation for approval or denial of the request within 7 days of the date of distribution.

2. Upon approval recommendation by the affected departments, the permit official may issue the permit provided the use meets the development standards enumerated in this section. Each of the development standards for specified uses ensures the specified requested use is not inconsistent with and does not unreasonably impair public use of right-of-way and mitigates the encroachment onto public right-of-way, provides safety and aesthetics to adjacent uses, and insures compatibility with adjacent structures and uses.

3. Upon denial recommendation by the affected departments, the permit official shall deny issuance of the permit.

4. Appeals process.

a. An applicant may appeal the denial of an application in writing within ten calendar days after notice of the denial has been received, by submitting a written request to the permit official. Within ten business days, the appeals official, as described in Section 15.08.011 (Definitions) shall hold a hearing on whether to issue the permit or uphold the denial. The applicant shall have the right to present evidence at said hearing and to question appropriate city officials. The decision to issue the permit or uphold the denial shall be based solely on the approval criteria set forth in this chapter. The appeals official shall render a decision on the appeal within five business days after the date of the hearing. In the event that the purpose of the proposed event is a spontaneous response to a current event, or where other good and compelling causes are shown, the appeals official shall reasonably attempt to conduct the hearing and render a decision on the appeal as expeditiously as is practicable.

b. The decision of the appeals official is subject to review by city council. The applicant shall submit a written request to the permit official, who shall forward the request for placement on the agenda of the next available regular city council meeting in compliance with all ordinances and statutes relating to the placement of items on the city council agenda and the posting of the agenda. The decision to issue or uphold the denial shall be based solely on the approval criteria set forth in this chapter. The decision of the city council is final.

E. Types of encroachments. Any one or more of the activities, improvements, facilities or uses on public right-of-way in Table 1-1 may be granted a license or a permit:

Table 1-1

Type of Encroachment	Authorizing Instrument	Term	Additional Requirements
1. Aerial encroachments			
a. Awnings, canopies, galleries and arcades	Permit	One—five years	See Section I
c. Temporary street displays	Permit	One Week—Six Months	See Section K
d. Banner program	Permit	Six months—five years	See Section L
e. A pedestrian sky-walk	License	License denotes term	Meets all applicable city, state and federal requirements.
f. Signs	Permit	One—five years	See Section M
g. Pipelines, transmission lines or cables	License	License denotes term	Meets all applicable city, state and federal requirements
h. Other overhead encroachments not specified herein	License	License denotes term	Meets all applicable city, state and federal requirements
2. Surface encroachments			
a. Sidewalk Cafe	Permit	One—ten years	See Section N
b. Street furniture (includes but is not limited to, benches, bollards, waste containers, lighting, shelters, outdoor pavilions, and other streetscape components providing convenience, safety and access to activities, amenities and location information)	Permit	One—ten years	See Section J
c. Ornamental gates, columns or other ornamental works of iron, wood, masonry, earth or other materials denoting the entrance to a neighborhood or subdivision	Permit	One time no renewal required	Improvements may display the name of the subdivision or neighborhood but shall contain no commercial advertising or other signage.
d. Façades, ornamental gates, columns or other works of iron, wood, masonry, earth or other materials	Permit	One time no renewal required	Improvements shall not impede pedestrian paths of travel and shall be ADA/TAS Compliant. Improvements shall not impede the visibility triangle of the property

Type of Encroachment	Authorizing Instrument	Term	Additional Requirements
e. Taxi-stand	License	One year. Annual renewal required	See standards in Title 6, Chapter 6.16 (Taxicabs) of the City Code
f. Supportive or decorative columns, arches, or other structural or decorative features of any historically significant building or structure	Permit	One time no renewal required	Historic preservation officer/HLC shall approve all applications prior to issuance of a permit.
g. Reserved.			
h. Building or other structural encroachment when vacation of the public right-of-way is not in the best interest of the public	Permit	Maximum fifteen years	See Section P.
i. Food vending concessions within the downtown area	License	License denotes term	See Section Q.
j. Accessibility ramps required by the City building code	Permit	One time no renewal required	Shall comply with the Americans with Disabilities Act (ADA) and Texas Accessibility Standards (TAS).
k. Pipelines, transmission lines or cables	License	License denotes term	Does not unreasonably impair the public use of the right-of-way and meets all applicable city, state and federal requirements.
l. Outdoor pay telephones	License	License denotes term	Renewals of existing licenses and new non-certificated, franchised telephone companies only.
m. Stairways	Permit	One time no renewal Required	Construction, installation and maintenance shall comply with all applicable City, State, and Federal requirements.
n. Signs	Permit	One—five years	See Section M.
o. Sidewalk retail vending	Permit or license	One-five years	See Section R.
p. Other surface encroachments not specified herein	License	License denotes term	Does not unreasonably impair the public use of the right-of-way and meets all applicable city, state and federal requirements.

Type of Encroachment	Authorizing Instrument	Term	Additional Requirements
q. Parking Parklet	Permit	One year	See Section O.
3. Subsurface encroachments			
a. Underground storage vault or basement structure	Permit	One time no renewal required	Does not unreasonably impair the public use of the right-of-way and meets all applicable building code standards.
b. Pipelines, transmission lines, cables or storage tank	License	License denotes term	Does not unreasonably impair the public use of the right-of-way and meets all applicable city, state and federal requirements.
c. Other subsurface encroachments not specified herein	License	License denotes term	Does not unreasonably impair the public use of the right-of-way and meets all applicable city, state and federal requirements.

F. Fees.

1. The established application processing fee shall accompany all applications for a license or permit. This fee shall be nonrefundable, regardless of ultimate action by the city council or the permit official, and shall be in addition to other charges for a particular licensed or permitted use.

a. Applicants shall pay the established annual fee for each license or permit.

(1) The established fee for the first year of the license or permit shall be paid prior to consideration of the license request by city council or issuance of the permit by the permit official. This fee shall be refunded within fifteen days if the request is denied.

(2) When the term of the license or permit exceeds one year, the established annual fee shall be paid each year on or before the anniversary date of approval.

(3) For licenses or permits exceeding one year, applicants shall have the option of paying the established fee for the entire term of the license or permit at a three percent discount, if paid in full prior to the time of approval. Applicants exercising the option to pre pay the established fee for the entire term of the license or permit shall be entitled to a refund of the total amount paid for the entire term of the license if the license or permit is denied. However, applicants shall not be entitled to a refund if after the license or permit is granted, it is later terminated prior to expiration.

2. Fees within areas designated in this section shall have a separate established fee. Payments shall be made as stated in subsection F.1. of this section.

a. Reserved.

b. Rapid transit system (RTS) corridors adopted by city council in 2009 and as amended in 2010.

c. Properties municipally zoned Smart Code (SCZ), designated as transit oriented development (TOD) overlays, or any additional specially designated overlay districts which specifically establish separate fees for special privilege licenses or permits.

3. For any special privilege license or permit not listed in Table 1-1 of this section, applicants

shall pay the established fee for "other special privileges" which shall be no less than one thousand dollars per year.

a. In the event the city and applicant find the established fee for a special privilege not listed in Table 1-1 unreasonable, an alternative fee as agreed to by the parties may be permitted upon approval by city council.

4. The annual fees shall remain the same for a period of one year from the date the license or permit is granted and are subject to change after each one year period the license or permit remains in effect. Whether or not stated in this section, the city council retains the right to increase or decrease the annual fee specified in this section.

5. The established annual fee for any special privilege license or permit located in a Tax Increment Reinvestment Zone of the City of El Paso, Texas may be reduced or waived as determined by city council.

G. Insurance required. As a condition of the license or permit, the grantees shall agree to indemnify, defend and hold harmless the city, its officers, agents, servants and employees from any and all claims, loss, damages, causes of action, suits and liability of every kind, including all expenses of litigation for injury or death of any person, or for damages to any property arising out of or in connection with grantee's use of the public right-of-way regardless of whether such injuries, death or damages are caused in whole or in part by the negligence of the city.

1. No license or permit shall be granted by the city unless grantee files a copy with the planning and inspections department and financial services a certificate of liability insurance accompanied by a copy of the policy of insurance as prescribed by the risk management of the City of El Paso.

2. Grantee(s) shall maintain said insurance with a solvent insurance company authorized to do business in Texas. The policy shall provide that the insurer will defend against all claims and lawsuits which arise and pay any judgment of a court of competent jurisdiction against the city, its officers, agents, servants or employees and grantee(s) their officers, agents, servants or employees as additional insureds to the full amount of the policy limits. The policy of insurance shall name the grantee and the city as insureds to the full amount of the policy limits.

3. Such policy or certificate shall provide that the insurance cannot be cancelled, or the amount of coverage changed without thirty days prior written notice to the city's planning and inspections department and financial services, or ten days prior written notice for cancellation based on non-payment of insurance premiums.

4. Failure to keep the policy in full force and effect throughout the term of the license shall be grounds for cancellation. Certificates of insurance that state the insurer shall endeavor to give notice and/or that there shall be no liability for failure to give notice required therein shall not meet the minimum requirements of this section.

H. Exceptions. The following activities, improvements, facilities, or uses on public right-of-way shall not require a license or permit as herein provided:

1. City owned and maintained transit bus shelters and other related amenities for the convenience of the public;

2. Decorative landscaping as defined in Chapter 18.46.050 (Definitions), under the following circumstances:

a. Median as defined in Chapter 19.50.030 (Definitions). Landscaping complying with the provisions of Section 12.68.060 (Planting in arterial and local street medians), Chapter 21.50.110 (Landscape Standards) and Chapter 13.16 (Insurance requirements for work within right-of-way of public streets and alleys).

b. Parkway as defined in Chapter 19.50.030 (Definitions).

(1) Abutting a local or arterial street as defined in Title 19 (Subdivisions), and not subject to the provisions of Chapter 18.46 (Landscape standards) or Chapter 21.50.110 (Landscape Standards).

(2) Abutting a local or arterial street as defined in Title 19 (Subdivisions), and subject to the provisions of Chapter 18.46 (Landscape) or Section 21.50.110 (Landscape Standards).

c. Installation and maintenance. Landscaping of medians and parkways is encouraged; however, nothing in this section shall be deemed to require such landscaping. In all instances where a property owner or other entity landscapes a parkway or median, such property owner or other entity shall be responsible for furnishing, installing and maintaining all such landscaping, including costs for irrigation systems, water meters, and associated water consumption;

3. A temporary street closure or use of right-of-way for activities such as, but not limited to, parades, public assemblies, block parties, marches, and athletic events, provided the City has issued a permit for such use as authorized under Chapters 13.32 (Temporary Events), Chapter 13.36 (Parades and Public Assemblies), and Chapter 13.38 (Special Events).

4. Temporary commercial filmmaking activities for a period of forty-eight hours or less, provided that the city has issued a permit for such activity as authorized under Chapter 13.30 (Film Making Events).

5. Encroachments such as, but not limited to, newspaper racks, benches, waste containers, and public utility facilities where the city has granted a franchise or lease permitting such use of the public right-of-way provided they comply with subsection J. (Street Furniture) of this chapter.

6. Bicycle racks installed to meet the requirements of off-street parking and loadings standards of Section 20.14 Article II (Bicycle Parking) complying with subsection J. (Street Furniture) of this chapter.

7. The temporary use of streets or public property for the storage or handling of materials or of equipment required for construction or demolition complying with Chapter 18.08 (Building Code).

8. Encroachments such as, but not limited to, bay windows, fire escapes, and cornices that comply with Chapter 18.08 (Building Code).

9. The temporary use of public right-of-way or public property for the drilling of monitoring wells complying with Chapter 13.08 (Excavations).

10. City sponsored temporary street displays, kiosks, or banner programs;

11. Memorial markers, provided that the placement of such markers are approved by the city and comply with the policies and procedures established by the director of transportation.

12. Signs may be located in the public right-of-way without the requirement of a sign permit or a special privilege, which meet the following criteria:

a. The sign is a framed, portable two-sided (message on both sides), single panel style or two connected single panels ("A-frame" or "tent style");

b. The frame of the sign is constructed entirely of wood and/or metal enclosing the sign panel(s), except that non-commercial signs as defined in Section 20.18.050 (Definitions) shall be exempt from this requirement;

c. The face of the sign is constructed of wood, metal, plastic or hardboard material;

d. The face of the sign is no larger than five square feet;

e. The sign area is no greater than nine square feet, and does not exceed thirty-six inches in height in any direction;

f. The sign is located within the parkway and is not permitted in the median;

g. The sign is freestanding, without requiring staking into the ground;

h. The sign does not include any lighting;

i. The sign is located within the parkway within the hours of 6:00 a.m. and 8:00 p.m.; and

j. The sign owner shall be responsible for all claims, causes of action, liability, damages and/or expenses for any damage to or loss of any property, or any injury to any person, resulting from use of city right-of-way.

k. The sign may not be placed closer than twenty feet to a waste container placed in the right-of-way pursuant to a franchise agreement issued by the city.

l. The sign may not be placed in that area of a triangle formed by the intersecting property lines and a diagonal line joining the property line at points twenty feet from their intersection of any corner lot.

13. For properties with zero-lot lines, wall signs that are flush mounted on a facade that project less than eighteen inches and meet the standards of Chapter 20.18 (Signs).

14. Arcades and galleries as defined in Chapter 21.70.010 (Definitions), awnings and canopies constructed pursuant to Chapter 21.50.070 (Building Configuration).

15. Arcades, awnings, canopies and galleries that comply with subsection I. (Awnings, Canopies, Galleries and Arcades) of this chapter.

16. Open porches, balconies and bay windows pursuant to Chapter 21.50.070 (Building Configuration).

17. Wayfinding signs approved by the City of El Paso in accordance with Section 15.08.140.

18. Stairways and handicap ramps that comply with Chapter 18.08 (Building Code) and/or are required to provide TAS/ADA access to a building legally existing for forty years or longer.

19. Bicycle racks installed pursuant to the terms of an interlocal agreement provided that the interlocal agreement allows for the installation of bicycle racks on the public right-of-way and the bicycle racks and the installation of the bicycle racks comply with the terms of the interlocal agreement and all other applicable ordinance requirements.

I. Arcades, awnings, canopies and galleries.

1. Definitions.

a. Arcade: A private frontage conventional for retail use wherein the façade is colonnade that overlaps the sidewalk, where the façade at the sidewalk level remains at the frontage line.

b. Awning: A rooflike shelter of canvas or other material extending over a doorway, from the top of the doorway, from the top of a window.

c. Canopy: An overhanging projection or covering, as a long awning stretching from the doorway of a building to the curb.

d. Gallery: A private frontage conventional for retail use wherein the façade is aligned close to the frontage line with an attached cantilevered shed or lightweight colonnade overlapping the sidewalk.

2. Application.

a. Scaled architectural drawing(s) showing front and side elevations must be in keeping with the original architectural design of the structure involved for historical correctness.

b. An engineering certification on the structural design and wind loading capability based on the current edition of the adopted Building Code.

3. Location.

a. Protection of healthy, mature street trees shall take precedence over providing awnings, canopies, galleries or arcades.

b. Awnings and canopies shall be placed within window bays and must not cover piers or other architectural details of the principle building.

c. A minimum distance of eight feet between the sidewalk and the lowest portion of the structure of the awning, canopy, gallery or arcade.

d. A minimum distance of seven feet between the sidewalk and the bottom edge of an awning's valence.

e. A minimum setback of two feet between the face of the curb and the closest portion of the awning, canopy gallery or arcade.

f. A minimum distance of three feet between the face of the building and the closest portion of the outside of the awning or canopy.

g. A minimum clear area of two feet measured perpendicular to the curb face and five feet measured parallel to the curb face between the closest portion of a street element over seven feet in height, including tree branches, and the closest portion of the awning, canopy, gallery or arcade.

h. Ten feet minimum between the interior walls of the gallery which shall be open at both ends and connected to the adjacent sidewalks.

i. Twelve feet minimum between the interior walls of the arcade which shall be open at both ends and connected to the adjacent sidewalks.

4. Other standards.

a. Awnings and canopies shall be constructed of durable materials such as canvas, metal and/or glass and shall be anchored in a manner to preserve the architectural integrity of the façade (anchoring into mortar joints).

b. Galleries and arcades shall be constructed of materials similar to those used on the principal building.

c. Lighting placed within the awnings, canopies, galleries and arcades shall be placed in a manner so as to be screened from view at the street.

J. Street furniture. For purposes of this section, street furniture shall include benches, seat walls, planters, bicycle racks, newspaper racks, waste and recycling receptacles.

1. Street furniture shall compliment the building's architecture, shall not encroach into the pedestrian pathway and shall be maintained by the property owners.

2. Benches.

a. Benches parallel to the curb face shall face towards the pedestrian pathway.

b. Benches perpendicular to the curb face shall face another bench in a social arrangement with a distance of five and one-half feet between benches.

c. A minimum of two feet between the face of curb and the closest portion of the bench is required.

d. A minimum width of six feet between the curbline or the closest portion of the street-side bench or other streetscape element (if present) and the building face or the closest portion of the building side bench or other streetscape element (if present).

e. A minimum distance of five feet measured between the base of a street element and the closest portion of a bench.

f. Benches shall be designed in such a manner to discourage sleeping by including additional arms within the bench seating area.

3. Seat walls and planters.

a. Seat walls shall be located between the face of the curb and the pedestrian pathway and/or between the pedestrian pathway and the face of the building; however, the sum of the width of all seat wall/planter areas shall not exceed twenty-five percent of the total sidewalk width.

b. A maximum distance of twenty feet measured parallel to the curb face for a seat wall or planter is required before a break of three feet be provided.

c. A minimum setback of two feet between the face of the curb and the closest portion of the seat wall or planter.

d. A minimum width of six feet between the curbline or the closest portion of the street-side seat wall or planter or other streetscape element (if present) and the building face or the closest portion of the building-side seat wall or planter or other streetscape element (if present).

e. A minimum of three feet measured between the closest portion of the seat wall or planter and another seat wall or planter and the base of a street element.

f. A minimum height of eighteen inches with a maximum height of twenty-four inches to the top of a planter which may be incorporated for a seating area on a seat wall.

g. A minimum depth of fifteen inches shall be required for a seating area on a seat wall.

h. Seat walls shall be designed to deter skateboard use by installing metal deterrents or providing grooves in the surface at appropriate intervals.

4. Newspaper racks.

a. Newspaper racks shall be located between the face of the curb and the pedestrian pathway and shall face toward the pedestrian pathway and the building.

b. A minimum setback of two feet between the face of the curb and the closest portion of the newspaper rack.

c. A minimum width of six feet between the closest portion of the newspaper rack and the building face or other streetscape element.

d. A minimum distance of three feet measured between the base of a street element and the closest portion of the newspaper rack except that two newspaper racks may be placed side-by-side.

5. Waste and recycling containers.

a. Waste and recycling containers shall be located between the face of the curb and the pedestrian pathway.

b. Waste and recycling containers may be combined into one unit or placed side-by-side adjacent to each other; however, they shall be placed so that the longest dimension is parallel to the curb face.

c. A minimum distance of three feet measured between the base of a street element and the closest portion of the waste or recycling container except that one waste container and one recycling container may be placed side-by-side.

d. A minimum setback of two feet between the face of the curb and the closest portion of the waste or recycling container.

e. A minimum width of six feet between the closest portion of the waste or recycling container and the building face or other streetscape element.

6. Bicycle racks.

a. A minimum setback of three feet shall be required between the bicycle rack and the building face or other streetscape elements, such as but not limited to parking meters, trees, street furniture, fire hydrants, and utility vaults (Figure 1).

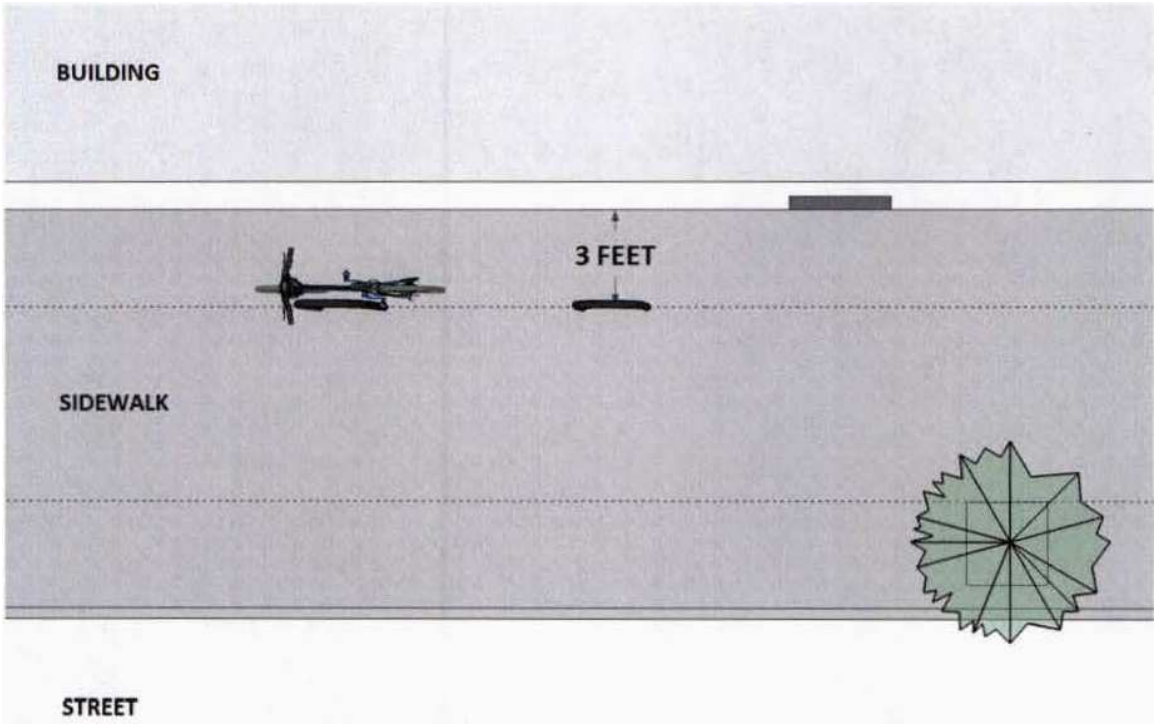

Figure 1. Bicycle rack and the building face.

b. A minimum setback of five feet shall be required between the bicycle rack and a curb cut or accessibility ramp.

c. For bicycle racks oriented perpendicularly or diagonally to a sidewalk or walkway: a minimum setback of three feet shall be required between the bicycle rack and the face of the curb; a minimum width of three feet shall be required between each bicycle rack; and a minimum width of eight feet shall remain unobstructed for the pedestrian path of travel when a bicycle is not attached to the bicycle rack (Figure 2).

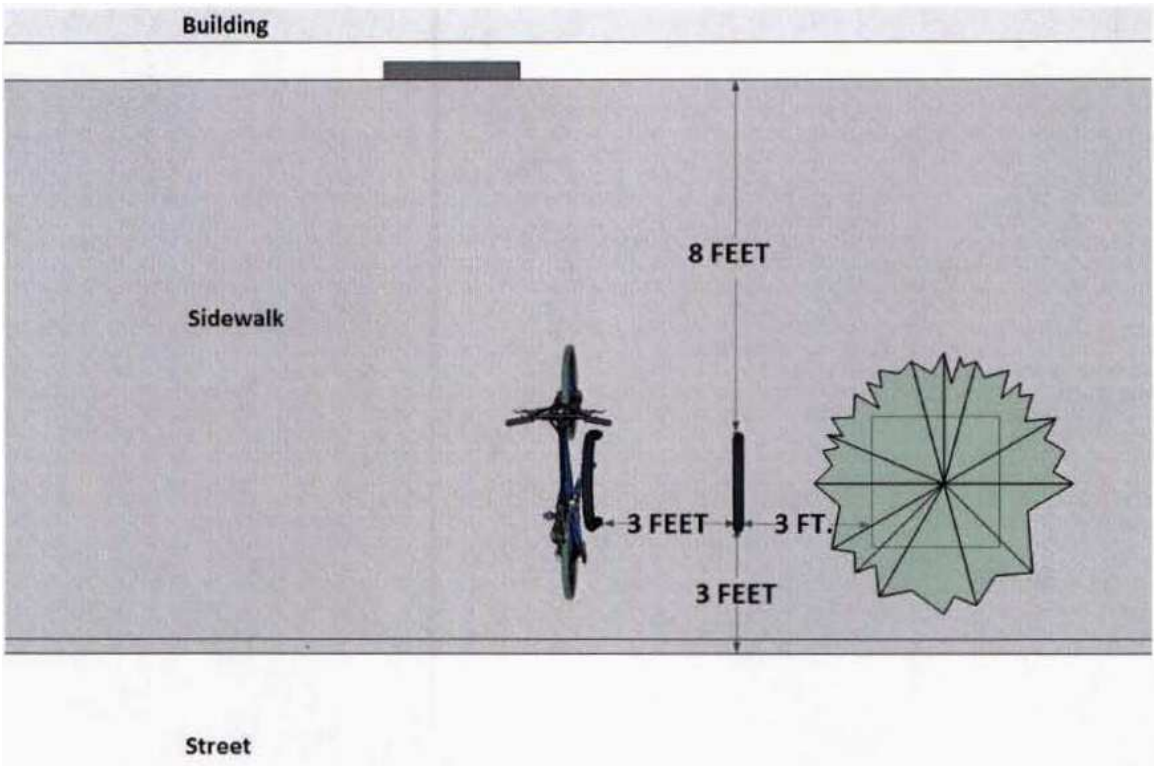

Figure 2. Perpendicular Bike Racks.

d. For bicycle racks oriented parallel to a sidewalk or walkway: a minimum setback of three feet shall be required between the bicycle rack and the face of the curb; a minimum setback of six feet shall be required between each bicycle rack; and a minimum width of six feet shall remain unobstructed for the pedestrian path of travel when a bicycle is not attached to the bicycle rack (Figure 3).

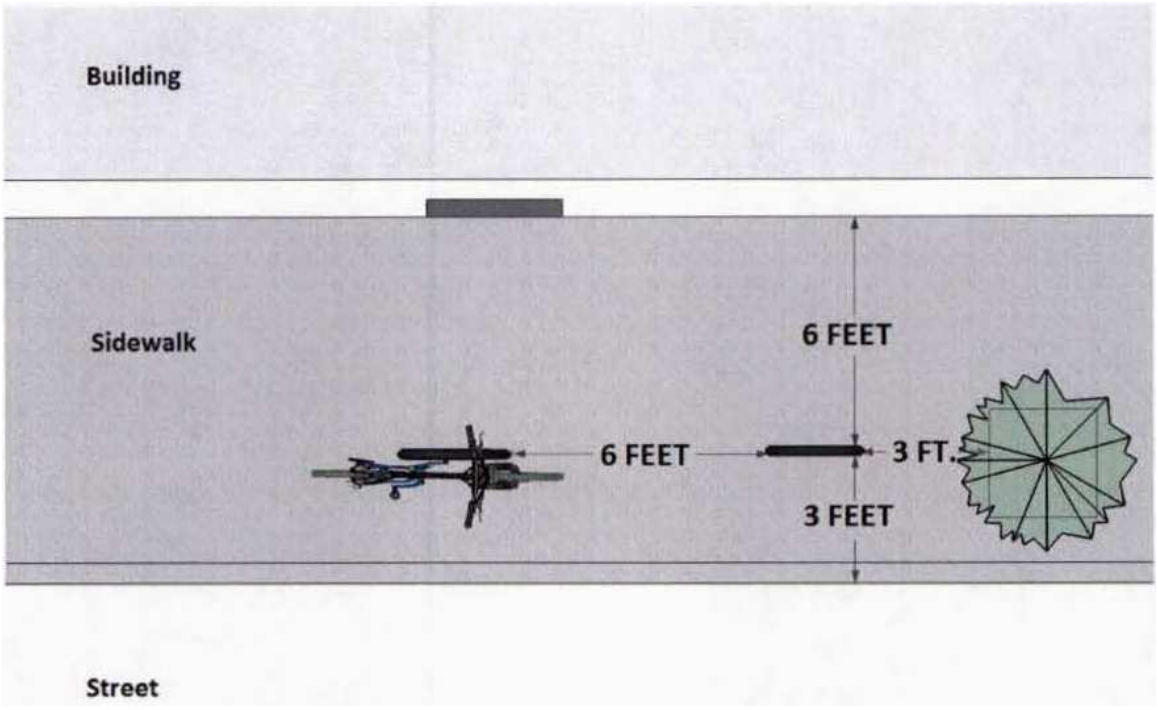

Figure 3. Parallel Bike Racks.

e. Wherever possible, bicycle racks shall be located in the parkway, aligned to not interfere with parked car doors or bus stops, and aligned parallel to the street in constrained areas.

f. For bicycle racks located in on-street parking spaces: a minimum of two breakaway bollards or posts located six inches from the parking delineation line shall be required; physical or visual barriers, dependent on traffic speeds, shall be installed between the travel lane and bicycle parking; a minimum setback three feet shall be required between the bicycle rack and the face of the curb; a minimum setback of three feet shall be required between each bicycle rack; and white reflective tape shall be attached to each bicycle rack leg adjacent to travel lane (Figure 4).

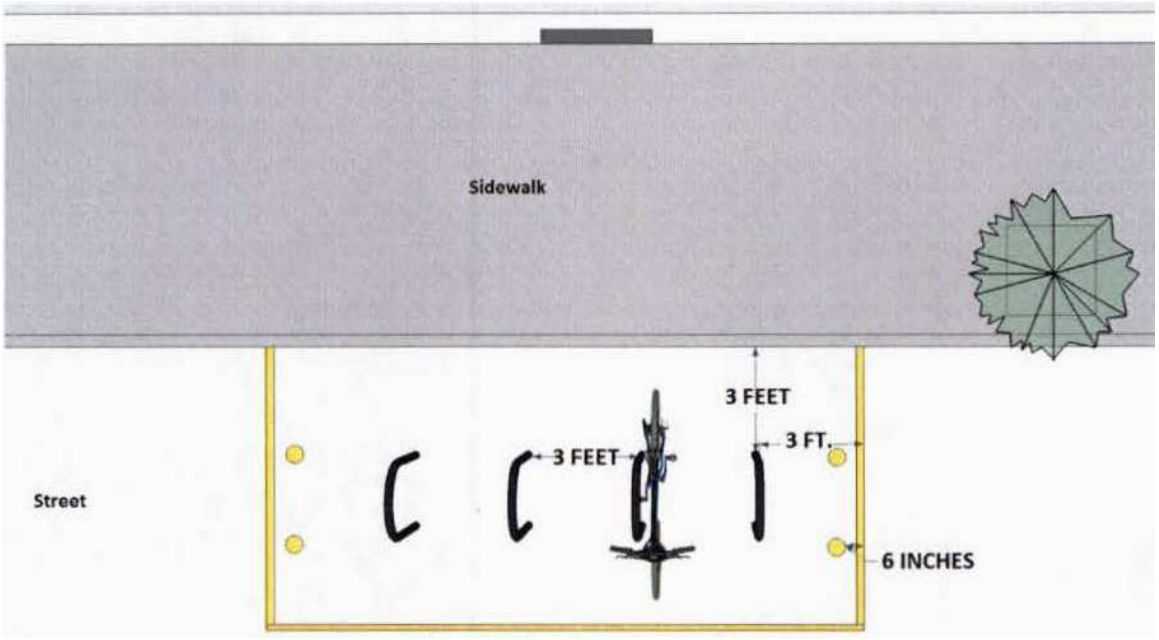

Figure 4. On-Street Bike Racks.

g. Bicycle rack construction requirements.

(1) Bicycle racks shall be of the standard "inverted-U" shape, and shall be made of steel tubing resistant to cutting, rusting, bending or deformation.

(2) Alternative bicycle rack styles may be approved by the permit official on a case-by-case basis. Alternative bicycle racks shall support the bicycle's frame at two or more points on a horizontal plane, or support the frame at one point while preventing the front wheel from turning. Alternative bicycle racks shall allow the frame and one wheel to be locked to the rack, regardless of whether the front wheel is removed or not. Alternative bicycle racks shall accommodate a wide variety of sizes and types of bicycles, including those with water bottles, without kick stands, without a diamond-shaped frame, or without a horizontal top tube.

(3) The design of alternative bicycle rack style, including the installation details shall be reviewed and approved by the permit official.

(4) All bicycle racks shall be securely anchored to the ground.

K. Temporary street displays.

1. Temporary street displays permitted.

a. Aerial displays including, but not limited to pennants, flags, valances, or other displays constructed of cloth, canvas, vinyl, light fabric, wallboard or other light materials.

b. Temporary wayfinding and/or directional signs located on existing city infrastructure within portions of city right-of-way.

2. Location.

a. In no case shall individual displays be permitted on any city traffic control device.

b. The display locations create no possible obstructions to pedestrian and vehicular traffic.

c. The display at the proposed location is feasible considering the placement of city fixtures or utility poles, or other city infrastructure.

d. The display location shall be limited to a utility pole or city light fixture that has been previously approved and fitted with bracket infrastructure by the department of transportation.

e. Surface temporary displays bust be free standing without "staking" or mounting to city infrastructure.

f. The display is of approved material, will not be permanently installed or attached, and will allow for wind cuts to reduce tendency of material to billow or sail.

g. The display material is properly maintained in a safe condition at all times,

h. The display is authorized subject to reasonable conditions regulating the location, mounting, duration, or manner of display.

3. Size.

a. The maximum area of each aerial temporary street display shall be two and one-half feet by five feet, or thirteen total square feet.

b. The maximum area of each surface temporary street display shall be four feet by four feet or sixteen total square feet.

4. Other requirements.

a. A display may provide for a business or organization sponsor name.

b. The display shall provide the following information, name of the sponsor(s) for the activity, event, or route as described in this section, name of the activity, event or route, time and place of the activity, event, or route, and slogan if applicable, unless determined that due to the design of the display such language cannot be added.

c. Temporary street displays are intended to display:

(1) Educational, scholastic, or artistic event;

(2) Community or public interest activity;

(3) Designated or recognized civic route or trail;

(4) Scenic roadway;

(5) Works of art;

(6) Other civic and cultural programs;

d. No display for an event or activity shall be maintained for a period exceeding one year, except as otherwise recommended by the permit official; provided, however, that no display shall be maintained for more than ninety days prior to or thirty days after an event or activity.

e. For any temporary street display sign which qualifies for a special privilege license or permit under this section, the sign permit required by City Code 20.18, shall be waived.

f. The city shall not be responsible for the cost of replacing temporary displays resulting from damage incurred during installation/removal or when replacement is deemed necessary by the city in order to maintain a safe condition.

(1) If the city must remove or replace the temporary display in order to maintain a safe condition, then the owner shall be responsible for all cost of removal.

L. Banner programs. A banner program is a group of decorative outdoor informational displays created by an eligible entity that are typically placed, erected, or fastened to street lights and used to enhance the streetscape.

1. Each individual display made part of a banner program ("individual display") shall be constructed of cloth, canvas, vinyl, light fabric, wallboard or other light materials.

2. Displays. Each banner program individual display shall relate to the public purpose of the eligible entity and promote activities relating to a municipal purpose and benefit.

a. An individual display may provide for a business or organization sponsor name in an area not to exceed twenty percent of the total display area.

b. The display shall not contain language or depictions that may disparage the city.

c. Individual displays made part of a banner program are intended to provide notification of the following:

(1) Educational, scholastic, or artistic events;

(2) Community or public interest activities or destinations;

(3) Designated or recognized civic routes or trails;

(4) Areas of historical or archeological significance;

(5) Directional assistance to other areas in near proximity;

(6) Other civic and cultural programs or facilities;

(7) Trade shows, events, and festivals.

3. Location.

a. In no case shall individual displays be permitted on any city traffic control device.

b. Individual display locations do not obstruct pedestrian and vehicular traffic.

c. Minimum clearance of fifteen feet measured from the bottom of the display is required for displays located adjacent to vehicular traffic.

d. Minimum clearance of eleven feet measured from the bottom of the display is required for displays located adjacent to pedestrian traffic.

e. Individual displays at each proposed location are feasible considering the placement of city fixtures or utility poles, installation of street mounting brackets, or other necessary fixtures.

f. When individual displays are propose for placement on a utility pole, written authorization from the utility company allowing installation and placement shall be provided.

g. Utility pole locations have been inspected by the utility company and found to have no technical, logistical, or safety problems and city fixture locations have been inspected by the director of transportation and/or the director of parks and recreations as applicable and found to have no technical, logistical, or safety problems.

4. Other requirements.

a. Individual displays are of approved material, will not be permanently installed or attached, and will allow for wind cuts, when necessary to reduce tendency of material to billow or sail.

b. Individual displays shall be maintained in a safe condition at all times.

c. The display is authorized subject to reasonable conditions regulating the location, mounting, duration, or manner of display to include provisions for approval of the method of affixing individual displays on city property by the director of transportation and removal of individual banners, upon request by the permit official, should same become worn, broken, or otherwise of no further aesthetic benefit to the area.

d. Banner displays located on Texas Department of Transportation right-of-way may only be authorized with approval from the State of Texas.

e. Eligible entities.

(1) Any municipal management district created pursuant to Chapter 375 of the Texas Local Government Code;

(2) The El Paso Empowerment Zone;

(3) The City of El Paso; and

(4) An institution of higher education as that term is defined by Section 61.003 of the Texas Education Code.

(5) A civic or neighborhood association created pursuant to Chapter 2.102 (Neighborhood Association Recognition) of the El Paso City Code.

(6) Historic districts established under the provisions of Chapter 20.20.040 (Procedure for designation of historic landmarks and districts).

f. The design of individual banners located within a banner district shall not require a certificate of appropriateness from the historic landmark commission yet shall be reviewed by the historic preservation officer, as defined in Chapter 2.24.040 (Historic Preservation Officer), as to compatibility with adjacent properties with historic zoning. Upon completion of review, reviewer shall provide a recommendation to the permit official regarding such compatibility.

g. Applicants shall pay the city's cost for installation, inspection, removal and bracket rental fees. Payment of installation and removal costs shall be done prior to installation of the banners.

h. All installation and removal of banner hardware shall be done by the city.

i. The city shall not be responsible for the cost of replacing banners resulting from damage incurred during the installation, removal of the banner(s) or when replacement is deemed necessary by the city in order to maintain a safe condition or a banner free of ripping, tearing and other damage; if the city must remove or replace the banner in order to maintain a safe condition, then the owner shall be responsible for all cost of removal.

j. Banners shall be delivered to the city no later than two weeks prior to the scheduled installation and picked up no later than two weeks after notice from the city of removal. Banners left after two weeks shall be subject to storage costs.

M. Signs.

1. Signs.

a. Signs are as defined in Section 20.18.050 (Sign Definitions).

b. All signs located within city right-of-way shall comply with Section 20.18 (Signs).

c. Directional signs permitted under this section shall be designed and installed by the department of transportation. Applicants are required to pay all costs of the design and installation of the directional signs.

N. Sidewalk cafes.

1. Filing application.

a. A letter from the property owner, if different from the food and/or beverage service establishment operator, indicating their authorization to obtain a sidewalk cafe permit; and acknowledging responsibility for any encroachments installed by tenant on city right-of-way.

b. The permittee shall be required to comply with all applicable codes, rules, regulations, and laws.

2. Compliance with design guidelines required.

a. Sidewalk cafes shall comply with all guidelines in the "Right-of-way Cafe Design Guidelines" available on the city's website or on file with the planning and inspections department.

b. The sidewalk cafe shall not prevent access to El Paso Water Utilities, El Paso Natural Gas, or El Paso Electric Company easements, meters, valves, manholes, or structures for maintenance and/or repair. The sidewalk cafe shall not prevent access to the El Paso Fire Department connections (FDC), fire hydrants, or fire escapes.

c. The sidewalk cafe shall not impede access to City of El Paso light fixtures, benches, bicycle racks, etc. for maintenance and repair. Trees planted by the City of El Paso and irrigation systems that are located within the sidewalk cafe area shall be maintained by the permittee and may not have objects attached to them that would impede or affect the life of the trees. The city shall have the right to enter and inspect the property at any time to ensure proper maintenance of city property.

3. Construction.

a. All construction shall comply with any applicable historic district design standards and guidelines. Applicants shall receive approval from the historic preservation officer or the historic landmark commission (if applicable) prior to approval of the permit. All proposed improvements within city right-of-way shall be included in the permit application.

b. A pavement cut permit in accordance with Chapter 13.08 (Excavations) shall be required for any work on city right-of-way.

c. Sidewalk cafes shall be reviewed for ADA compliance prior to permit approval. Sidewalk cafes shall not impede ADA accessibility.

4. Boundaries and fencing.

a. A sidewalk cafe shall not be enclosed by permanent structure(s).

i. If fencing is provided, fencing shall be continuous around the perimeter of the sidewalk cafe except for one opening/entry point. Fences shall have a durable professional finish and shall comply with applicable historic district guidelines. Fenc-

ing shall include sleeves at the base of the poles to allow for removal from city rights-of-way if necessary.

ii. The boundaries of a sidewalk cafe on a city sidewalk may also be defined by planters, trees, benches or other structure as approved by the permit official. If the applicant is permitted by TABC to sell and/or serve alcoholic beverages within the sidewalk cafe, the perimeter of sales shall be adequately delineated to note control of the premises and the following shall apply:

(a) Street furniture, benches, planters and seat wells shall comply with the provisions of subsection J. (additional requirements for street furniture) of this chapter.

(b) A minimum service area of two feet adjacent to each table that does not encroach into the pedestrian pathway is required for unenclosed cafe areas.

(c) A minimum distance of five feet shall be provided for a table and two chairs placed directly opposite each other is required for unenclosed sidewalk cafe areas.

5. Alcohol.

a. A license issued by the Texas Alcoholic Beverage Commission (TABC) is required for the sale and service of alcoholic beverages within the sidewalk cafe area.

b. City approval of an application for a sidewalk cafe on city right-of-way does not guarantee, warrant or assure that the Texas Alcoholic Beverage Commission will allow the sale and service of alcoholic beverages within the sidewalk cafe area.

c. The permittee must comply with any standards established by the Texas Alcoholic Beverage Commission.

6. Fire department requirements.

a. The location of any proposed outdoor serving stations requires fire marshal approval for their proximity to points of ingress and egress to the property. The area for the sidewalk cafe shall meet the current fire code requirements as determined by the fire marshal regarding sidewalk cafe areas and ingress and egress points of access. The fire marshal through plan review shall determine fire code compliance.

b. The fire marshal shall also require that occupancy capacities as defined in the International Building Code for the sidewalk cafe area and the building remain distinct and separate.

c. The sidewalk cafe must be open to the air, except that a canopy or awning conforming to requirements established by this chapter for aerial encroachments may be constructed over the sidewalk cafe and may be included in the same special privilege application. Canopies within the sidewalk cafe area shall meet current fire code definition and specifications. Proposed canopies shall comply with subection I. (additional requirements for awnings, canopies, arcades and galleries) of this chapter.

d. Acceptable auxiliary outdoor heating devices shall meet the requirements of the current fire code.

7. Other requirements.

a. Planters within the sidewalk cafe limit line shall be shown on the site plan submitted with the application and shall comply with subsection J. (additional requirements for street furniture) of this chapter.

b. Each sidewalk cafe shall have no less than one trash receptacle within the cafe limit line.

c. Overhead lighting located within public right-of-way shall be included in the permit application and shall meet all applicable historic district architectural and design standards. All electrical work shall be designed and installed in compliance with the Chapter 18.16 (Electrical Code).

i. Lighting on fencing may be permitted to add a decorative element but shall not be designed to attract attention. Flashing lights are not permitted.

ii. Lighting shall be clear or white.

iii. Light strands shall be maintained in good repair and burned-out bulbs shall be replaced promptly.

d. All relocation, removal, disposition and/or salvage of any city property shall be coordinated with the streets and maintenance department. The streets and maintenance department shall follow the city's establish policy and procedure for disposal or salvage of such property.

8. Cincinnati commercial district sidewalk cafe requirements. In addition to all other applicable provisions of subsection 15.08.120 (Special privilege licenses and permits) of this Code, the following provisions shall be applicable to this district:

a. Boundaries. The sidewalk cafes shall be defined as the terraced areas immediately adjacent to the storefront. For purposes of this subsection, retail and/or office space establishments, in addition to food and/or beverage service establishments may obtain a sidewalk cafe permit to use the terraced area immediately adjacent to the storefront. Boundaries of the sidewalk cafes shall be limited to the City of El Paso's constructed terraces as referenced in the university pedestrian improvements streetscape construction documents. Sidewalk cafes are limited to the use of seated only food and/or beverage service or retail and/or office space use.

b. Fencing. All fencing shall comply with design and height specifications found in the furnishing details of the City of El Paso's university pedestrian improvements streetscape construction documents.

c. Seating. For food and/or beverage service only. Seated-only capacity shall be required. Standing-only capacity shall not be permitted.

i. Tables and chairs shall not exceed thirty inches in height.

ii. Tables and chairs must be moveable to accommodate wheelchair access.

d. Smoking. Smoking shall not be permitted within the boundaries of the sidewalk cafe.

e. Limits on use of the sidewalk cafe. The use of the sidewalk cafe (as defined in Section 15.08.120.N.8.a) must cease between the hours of 1:00 a.m. to 7:00 a.m. However, the use of the sidewalk cafe during special events will be governed by the terms of the special event permit.

O. Parking parklets.

1. General.

a. "Parking parklet" means the use and occupation of a portion of the public right-of-way that is currently used as on-street parking for additional outdoor public space.

b. Application.

i. Application for parking parklet permit shall be filed with the city. The applicant shall pay the established fee. Such application shall include the following information:

ii. The name and address of the applicant.

iii. The legal address of the real property adjacent to the site proposed for the parking parklet.

iv. If alcoholic beverages are served within the designated parking parklet area, the permittee must provide proof that a valid license under all applicable laws for alcohol sales has been obtained.

v. A site plan of sufficient detail to demonstrate compliance with the requirements of this section.

c. Traffic control plan.

i. A traffic control plan in compliance with Chapter 12.30 is required for all applications for permit under this section during construction. Traffic control plan templates are available from the city traffic engineer and included in the right-of-way design guidelines.

ii. The traffic control plan and any required traffic control devices will be at the sole discretion of the traffic engineer.

iii. A traffic control permit is not required after construction activities have ceased.

d. Compliance with design guidelines.

i. All proposed parking parklets shall comply with all guidelines in the "Right-of-way Cafe Design Guidelines" available on the city's website or on file with the planning and inspections department.

e. In the event that the city determines that the location of any parking parklet constitutes an immediate physical danger, the encroachment into the right-of-way must be removed immediately.

f. Operational standards.

i. A parking parklet must occupy only parking spaces directly in front of the applicant's business or establishment.

ii. Occupancy within the parking parklet is limited to tables and chairs.

iii. The permittee must maintain the sidewalk and parking area in a good and safe condition.

iv. No amplified music, speakers, microphones, televisions, or other audio/visual devices will be permitted within the parking parklet area.

v. Operating hours of the parking parklet shall be restricted to the operating hours of the adjacent business or businesses.

vi. The parking parklet elements must be removed from the public right-of-way except during normal business hours. The storage of parking parklet elements within the public right-of-way is prohibited.

vii. The parking parklet must have a two-foot buffer zone between it and adjacent parking spaces and vehicular travel lanes. Additionally, wheel stops or posts should be included, as determined by the city manager or their designee.

viii. The parking parklet shall include a flush transition at the curb to permit easy access for wheelchair users or others with mobility issues and to avoid any tripping hazards.

ix. Additional occupancy provided by the parking parklet may not exceed fifty percent of the establishment's permitted maximum occupancy.

P. Buildings or other structural surface encroachment.

1. If a structural encroachment has existed thirty years or longer and is less than fifty square feet in area, the abutting property owner(s) shall apply for a permit and pay the established fee to continue the encroachment.

2. Applicants shall provide evidence of the structural nature of the encroachments such as certification from a structural engineer at the time of application.

3. Grantees shall submit a request to vacate the portion of city right-of-way within the initial term of the permit.

a. Upon approval of the right-of-way vacation, the permit shall terminate.

b. Upon denial of the right-of-way vacation, grantees shall have the option to renew the permit.

Q. Additional requirements for food vending concessions in the downtown improvement area.

1. Carts and kiosks.

a. Locations.

(1) Vendors within the downtown improvement area are limited to locations approved by the department of transportation based on vehicular sight visibility, available pedestrian access area and location and arrangement of street furniture, street lighting, utility meters, manholes, fire hydrants and fire appurtenances.

(2) Vendor locations shall not interfere with pedestrian traffic on the sidewalk between the vendor area and the adjacent buildings and between the vendor area and the adjacent street.

(3) Vendor locations shall not impede entrances, exits, and/or driveways of adjacent businesses.

(4) Vendor units shall be limited to free-standing carts within the parkway area. Vendor units shall not be permitted to be located on the street.

(5) Vendor units shall not be anchored or tied to any portion of the public rights-of-way, street furniture, city light standards, traffic control devices, utility boxes and meters, or fire hydrants and appurtenances.

(6) Vendor units shall be removed from city right-of-way when not in operation.

(7) Vendor locations shall comply with the provisions of Chapter 12.46 (Mobile Food Vendors).

b. Size and dimensions.

(1) Vendor carts shall be four feet by five feet or eight feet by ten feet based on the available vending area as prescribed in subsection a. (locations).

(6) Generators and propane use shall require approval of the fire department.

2. Food tucks.

a. Locations.

(1) Food trucks shall be located within areas that provide adequate vehicle sight visibility at intersections and shall not impede ADA/TAS accessible ramps and sidewalks.

(2) Food trucks shall comply with Section 12.46 (Mobile Food Vendors).

(3) Food trucks shall comply with Section 12.44 (Stopping, Standing and Parking Generally), Chapter 12.48 (Loading Zone, Bus and Taxi Stands) and Chapter 12.56 (Parking Meters).

b. Operations.

(1) Mobile food trucks shall comply with the provisions of Section 9.12 (Food and Food Handling Establishments).

(2) Vendors are responsible for obtaining all licenses and permits as required by law for the legal operation of food vending concessions. All applicable permits and licenses shall be affixed to the vending unit at all times.

(3) Sound amplifying devises including, but not limited to loud speakers, public address systems, radios, televisions and strobe lights or similar devices are prohibited.

(4) Vendors shall provide for trash and/or grease disposal. All trash and/or grease disposal receptacles shall not be placed within the pedestrian path of travel.

(5) Generators and propane use shall require approval of the fire department.

(6) Tables and chairs are permitted provided they do not impede the pedestrian path of travel.

R. Sidewalk Retail Vending.

1. General Provisions:

a. "Sidewalk Retail Vending" is the selling of merchandise on the sidewalk area adjacent to a commercial building with a zero lot line and is an accessory use in a zoning district where a retail establishment is lawfully operating on the first floor premises by the same entity operating such retail establishment.

b. "Vending Area" is the public right of way immediately adjacent to the Permittee's property, measuring no more than fifty-percent (50%) of the sidewalk area abutting the Permitted property, except that in the area designated as downtown in the City of El Paso Comprehensive Plan, "Vending Area" shall measure no more than three 3 foot by 9 foot areas abutting the Permitted property.

2. Application documentation. Application for a permit or license to conduct sidewalk retail vending shall be filed with the City. The applicant shall pay the established fee. Such application shall include the following information:

a. The name and address of the applicant.

b. The legal address of the real property adjacent to the site proposed for the sidewalk retail vending.

c. Proof of ownership of the real property adjacent to the site proposed for sidewalk retail vending.

d. One Year Term Permit or license - will require an operational permit issued by the El Paso Fire Department. Permits or licenses for more than a one year term with a maximum of a five year term - will require an operational permit and a valid Certificate of Occupancy issued in accordance with Title 18.02.108 of the El Paso City Code, for the first floor of the building adjacent to the site proposed for sidewalk retail vending and any storage areas above the first floor.

e. A dimensioned, detailed site plan showing the proposed layout of the proposed Vending Area. The site plan shall include any City or utility infrastructure located within the proposed Vending Area. If applicant proposes to use an awning to hang merchandise, a structural drawing of such awning is required.

f. Two color pictures (front and side) of the proposed Vending Area.

g. A description of the merchandise to be sold in the Vending Area.

h. A statement of the hours of operation of the retail establishment(s) lawfully operating on the first floor of the real property adjacent to the Vending Area.

i. The name of the retail establishment(s) lawfully operating on the first floor of the real property adjacent to the Vending Area, and a description of the merchandise sold in the establishment.

3. The Permit or license may be issued for a term between one to five years from the date of issuance, depending on the application documentation. Permittee is responsible for renewing his/her permit or license by submitting a request for renewal to the City and paying the required fee. Failure to do so in accordance with all the terms and conditions of this Section may result in the loss of the ability to renew.

4. Standards for sidewalk retail vending.

a. Only the types of retail merchandise sold in the adjacent building can be displayed in the Vending Area.

b. The majority of merchandise shall be inside of the retail establishment(s) in the adjacent building and all financial transactions must occur inside such retail establishment.

c. Sidewalk retail vending shall only operate when the entity that it is associated with it is open to the public in accordance with the normal business operating days and hours posted.

d. No permanent structure may be affixed to the sidewalk or the exterior of any building. The Permittee shall be responsible for the costs to repair any damage caused to any sidewalk or public property as a result of the Permittee's operations under this chapter.

e. A minimum of four feet of unobstructed pedestrian sidewalk access is required between the outer edge of the Vending Area and the curb, and the Vending Area shall comply with all Americans with Disabilities Act requirements, the Texas Accessibility Standards, and other applicable regulation, ordinance or law.

f. Building access and egress shall be maintained in accordance with Title 9.52 of the El Paso City Code. A minimum of three feet of unobstructed access shall be maintained at all times at the entrances and/or exits of the abutting real property and/or any adjacent business or real property.

g. Vending displays shall not completely cover the windows of the real property, and shall allow pedestrians a view of the inside retail spaces.

h. No equipment, including but not limited to tables, booths, chairs, or electrical lines utilized in conjunction with the Vending Area may be located within fifteen feet of any sprinkler system, fire hydrant and fire appurtenances, water supply shutoff valve, streetlight power boxes or traffic signal cabinets.

i. No equipment, including but not limited to tables, booths, chairs, or electrical lines utilized in conjunction with the Vending Area may be located within five feet of any connections to gas meters, sanitary sewer manholes and/or other utility equipment.

j. Display racks, tables and shelving used in conjunction with the Vending Area shall be finished or painted. Tables and shelving shall be skirted or otherwise adorned to cover the view of the under structures/legs.

k. Display of merchandise shall not exceed five feet in height from the ground, or seven feet if located in an area designated as downtown in the City of El Paso Comprehensive Plan, and is not permitted outside of the Vending Area.

l. Hanging of merchandise from the roof or awning of the primary retail structure is permitted within the Vending Area, provided a minimum seven foot clearance is maintained between the lowest portion of the merchandise and the finished grade of the sidewalk unless such hanging is above other merchandise displayed on items affixed to the ground.

m. No advertising signs are permitted within the Vending Area, except for pricing signs and each sign shall measure no more than one (1) square foot in size.

n. No stocking of merchandise is permitted in the Vending Area unless it is hidden from public view.

o. Packing or shipping cardboard is prohibited, except for containers in which merchandise is packaged for sale (i.e. shoe boxes).

(2) Vendor kiosks shall be limited to eighteen feet by twenty feet based on the available vending area as prescribed in subsection a. (locations).

c. Operations.

(1) Vendors shall comply with all provisions of Chapter 9.12 (Food and Food Handling Locations).

(2) Vendors are responsible for obtaining all licenses and permits as required by law for the legal operation of food vending concessions. All applicable permits and licenses shall be affixed to the vending unit at all times.

(3) Vendors are permitted between the hours of 8:00 a.m. and 8:00 p.m. daily; except that vendors are permitted during special events outside the daily hours upon approval of the department of public health and event coordinators.

(4) Sound amplifying devices including, but not limited to loud speakers, public address systems, radios, televisions and strobe lights or similar devices are prohibited.

(5) Vendors shall provide for trash and/or grease disposal. A maximum of a thirty-gallon covered garbage container is permitted at the vendor location provided that the container is not placed within the pedestrian path of travel.

(6) Generators and propane use shall require approval of the fire department.

2. Food tucks.

a. Locations.

(1) Food trucks shall be located within areas that provide adequate vehicle sight visibility at intersections and shall not impede ADA/TAS accessible ramps and sidewalks.

(2) Food trucks shall comply with Section 12.46 (Mobile Food Vendors).

(3) Food trucks shall comply with Section 12.44 (Stopping, Standing and Parking Generally), Chapter 12.48 (Loading Zone, Bus and Taxi Stands) and Chapter 12.56 (Parking Meters).

b. Operations.

(1) Mobile food trucks shall comply with the provisions of Section 9.12 (Food and Food Handling Establishments).

(2) Vendors are responsible for obtaining all licenses and permits as required by law for the legal operation of food vending concessions. All applicable permits and licenses shall be affixed to the vending unit at all times.

(3) Sound amplifying devises including, but not limited to loud speakers, public address systems, radios, televisions and strobe lights or similar devices are prohibited.

(4) Vendors shall provide for trash and/or grease disposal. All trash and/or grease disposal receptacles shall not be placed within the pedestrian path of travel.

(5) Generators and propane use shall require approval of the fire department.

(6) Tables and chairs are permitted provided they do not impede the pedestrian path of travel.

R. Sidewalk Retail Vending.

1. General Provisions:

a. "Sidewalk retail vending" is the selling of merchandise on the sidewalk area adjacent to a commercial building with a zero lot line and is an accessory use in a zoning district where a retail establishment is lawfully operating on the first floor premises by the same entity operating such retail establishment.

b. "Vending area" is the public right-of-way immediately adjacent to the permittee's property, measuring no more than fifty-percent (50%) of the sidewalk area abutting the permitted property, except that in the area designated as downtown in the City of El Paso Comprehensive Plan, "vending area" shall measure no more than three three-foot by nine-foot areas abutting the permitted property.

2. Application documentation. Application for a permit or license to conduct sidewalk retail vending shall be filed with the city. The applicant shall pay the established fee. Such application shall include the following information:

a. The name and address of the applicant.

b. The legal address of the real property adjacent to the site proposed for the sidewalk retail vending.

c. Proof of ownership of the real property adjacent to the site proposed for sidewalk retail vending.

d. One Year Term Permit or license—will require an operational permit issued by the El Paso Fire Department. Permits or licenses for more than a one-year term with a maximum of a five-year term—will require an operational permit and a valid certificate of occupancy issued in accordance with Title 18.02.108 of the El Paso City Code, for the first floor of the building adjacent to the site proposed for sidewalk retail vending and any storage areas above the first floor.

e. A dimensioned, detailed site plan showing the proposed layout of the proposed vending area. The site plan shall include any city or utility infrastructure located within the proposed vending area. If applicant proposes to use an awning to hang merchandise, a structural drawing of such awning is required.

f. Two color pictures (front and side) of the proposed vending area.

g. A description of the merchandise to be sold in the vending area.

h. A statement of the hours of operation of the retail establishment(s) lawfully operating on the first floor of the real property adjacent to the vending area.

i. The name of the retail establishment(s) lawfully operating on the first floor of the real property adjacent to the vending area, and a description of the merchandise sold in the establishment.

3. The permit or license may be issued for a term between one to five years from the date of issuance, depending on the application documentation. Permittee is responsible for renewing his/her permit or license by submitting a request for renewal to the city and paying the required fee. Failure to do so in accordance with all the terms and conditions of this section may result in the loss of the ability to renew.

4. Standards for sidewalk retail vending.

a. Only the types of retail merchandise sold in the adjacent building can be displayed in the vending area.

b. The majority of merchandise shall be inside of the retail establishment(s) in the adjacent building and all financial transactions must occur inside such retail establishment.

c. Sidewalk retail vending shall only operate when the entity that it is associated with it is open to the public in accordance with the normal business operating days and hours posted.

d. No permanent structure may be affixed to the sidewalk or the exterior of any building. The permittee shall be responsible for the costs to repair any damage caused to any sidewalk or public property as a result of the permittee's operations under this chapter.

e. A minimum of four feet of unobstructed pedestrian sidewalk access is required between the outer edge of the vending area and the curb, and the vending area shall comply with all Americans with Disabilities Act requirements, the Texas Accessibility Standards, and other applicable regulation, ordinance or law.

f. Building access and egress shall be maintained in accordance with Title 9.52 of the El Paso City Code. A minimum of three feet of unobstructed access shall be maintained at all times at the entrances and/or exits of the abutting real property and/or any adjacent business or real property.

g. Vending displays shall not completely cover the windows of the real property, and shall allow pedestrians a view of the inside retail spaces.

h. No equipment, including but not limited to tables, booths, chairs, or electrical lines utilized in conjunction with the vending area may be located within fifteen feet of any sprinkler system, fire hydrant and fire appurtenances, water supply shutoff valve, streetlight power boxes or traffic signal cabinets.

i. No equipment, including but not limited to tables, booths, chairs, or electrical lines utilized in conjunction with the vending area may be located within five feet of any connections to gas meters, sanitary sewer manholes and/or other utility equipment.

j. Display racks, tables and shelving used in conjunction with the vending area shall be finished or painted. Tables and shelving shall be skirted or otherwise adorned to cover the view of the under structures/legs.

k. Display of merchandise shall not exceed five feet in height from the ground, or seven feet if located in an area designated as downtown in the City of El Paso Comprehensive Plan, and is not permitted outside of the vending area.

l. Hanging of merchandise from the roof or awning of the primary retail structure is permitted within the vending area, provided a minimum seven foot clearance is maintained between the lowest portion of the merchandise and the finished grade of the sidewalk unless such hanging is above other merchandise displayed on items affixed to the ground.

m. No advertising signs are permitted within the vending area, except for pricing signs and each sign shall measure no more than one square foot in size.

n. No stocking of merchandise is permitted in the vending area unless it is hidden from public view.

o. Packing or shipping cardboard is prohibited, except for containers in which merchandise is packaged for sale (i.e., shoe boxes).

5. Permittee responsibilities.

a. Permittee shall keep the vending area free and clear of litter, debris, and any substance that may damage the sidewalk or cause pedestrian injury at all times.

b. Permittee shall be responsible for all maintenance of the vending area and shall repair any damage caused to the right-of-way by the vending activity.

c. Permittee shall not construct, or allow to be constructed, any improvements or structures in the vending area, or allow any alterations to be made to the vending area without prior written consent of the city.

d. Permittee shall, at its own expense, provide for the repair of all water lines, storm and sanitary sewer lines, service lines and water meters owned by the city that permittee, its employees, contractors, agents or assigns damage so that such repair complies with all City Code requirements.

e. The city shall have the power at any time to order and require permittee to immediately remove and abate any portion of the vending area that is dangerous to life or property by written notice. Should permittee, after written notice, fail or refuse to comply within a reasonable time, the city shall have the power to remove or abate the same, at the expense of permittee. In the event city removes or abates the vending area as provided herein, permittee shall not be compensated for any loss associated with such removal or abatement of the vending area, or associated revenue, nor shall the city be liable to the permittee for any direct, indirect or consequential damages due to the removal or abatement of the vending area.

f. Permittee shall not assign the designated vending area, nor allow the same to be assigned by operation of law or otherwise, or sublet or sell the designated vending area or any part thereof.

6. City Rights and Authority.

a. Throughout the term of the permit, the city expressly reserves the right to install, repair, or reconstruct the city right-of-way used or occupied by permittee, any streets or alleys and all ancillary public uses, usual and customary in connection with streets and alleys, expressly including but not limited to, drainage facilities and structures.

b. The city reserves the right to lay and permit to be laid, utility lines including, but not limited to, storm and sanitary sewer, gas, water, and other pipelines or cables, and to do and permit to be done, any underground and overhead installation or improvement that may be deemed necessary or proper by the city in, across, along, over or under the vending area occupied by permittee, and to change any curb or sidewalk or the street grade of any street. The city shall notify permittee of work to be performed as herein described 30 days prior to the start of such work. The city shall not be liable to permittee for any damage resulting there from, nor shall the city be liable to permittee for any damages arising out of the performance of

any work by the city, its contractors or subcontractors, not willfully and unnecessarily occasioned; provided, however, nothing herein shall relieve any other persons or entities from liability for damage to the vending area. If the city requires permittee to alter, change, adapt, remove, or relocate the vending area due to imminent public safety concerns, or because of changes in the grade of the vending area or in the location or manner of constructing a water pipe, sewer pipe or other underground or aboveground pipes owned by the city, permittee shall make the alterations or changes as soon as practicable when ordered in writing by the city without claim for reimbursement or damages against the city. If these requirements impose a financial hardship upon permittee, permittee shall have the right to present alternative proposals for the city's consideration.

c. The city reserves the right to use the surface, subsurface and airspace within the vending area for any public purposes allowed by law and deemed necessary by the city and to do or permit to be done any work in connection therewith that may be deemed necessary and proper by the city on, across, along, under or over said vending area occupied by permittee, provided such use does not interfere with permittee' s use of the vending area. Whenever, because of such work, it is deemed necessary by the city to alter, change, adapt, conform or relocate portions of the vending area, such alteration or change or relocation shall be made by permittee when ordered in writing by the city without any claim for reimbursement or damages against the city.

d. City is not responsible for any theft, damages or destruction of goods or property of permittee both during the term of the permit after permittee vacates the designated vending area. If said goods and any other property placed by permittee in the vending area are not removed after hours of operation, the city may remove the same without further notice or liability.

7. License.

a. An entity, organization or group of businesses may apply for a license to create a designated district where such group will administer a program for intake of applications and issuance of authorization to operate sidewalk retail vending for individual property owners within the designated district. The city shall charge a license fee based upon the estimate of the number of authorizations contemplated within the license, and shall be adjusted according to the number of actual authorizations provided at each reporting period.

b. All sidewalk retail vending authorized thereunder shall comply with all terms and conditions of this section, and such group shall provide quarterly reporting of all vendors participating in their program, including the name, address, and proof of insurance.

c. Such group may provide services such as the required insurance to cover each entity authorized, administrative support, and may act as a liaison to the city.

d. Such group may charge a fee for participation in the licensed program that shall not exceed 150 percent of the annual fee charged by the city.

e. Any license issued hereunder does not restrict the rights of any other person from acquiring a permit directly from the city under this section. (Ord. 16983 §§ 1—3, 2008; Ord. 16855 § 1, 2008; Ord. 16697 § 1, 2007; Ord. 16612 § 1, 2007; Ord. 16477 § 1, 2006; Ord. 16319 § 1, 2005; Ord. 15971 §§ 1—3, 2004; Ord. 15884 § 1, 2004; Ord. 15222 § 1, 2002; Ord. 15018, 2002; Ord. 14871 §§ 1—3, 2001; Ord. 13342 §§ 1, 2, 1997; Ord. 13317 §§ 1—3, 1997; Ord. 13152 § 124, 1997; Ord. 13031 § 1, 1996; Ord. 12817 § 1, 1996; Ord. 12516 § 1, 1995; Ord. 12315 § 1, 1995; Ord. 12172 § 1, 1993; Ord. 12106 §§ 1—4, 1994; Ord. 11653 §§ 1—4, 1993; Ord. 11572 § 1, 1993; Ord. 11482 §§ 1—3, 1993; Ord. 10910 § 1, 1992; Ord. 10658 § 1, 1991; Ord. 10363 § 1, 1991)
(Ord. No. 17154, § 2, 7-28-2009, eff. 9-1-2009; Ord. 17181, § 1, 8-25-2009, eff. 9-1-2009; Ord. No. 17321, § 11, 5-11-2010; Ord. No. 17362, § 1, 7-27-2010; Ord. No. 17393, §§ 1—3, 5, 6, 8-24-2010, eff. 9-1-2010; Ord. No. 17487, § 3, 1-18-2011; Ord. No. 17581, § 1, 6-14-2011; Ord. No. 17676, §§ 2—4, 11-15-2011; Ord. No. 17732, § 1, 2-21-2012, eff.

5-1-2012; Ord. No. 17742, § 1, 3-6-2012; Ord. No. 17808, §§ 1—7, 6-5-2012, eff. 6-11-2012; Ord. No. 17827, § 1, 7-31-2012; Ord. No. 17950, § 1, 2-19-2013; Ord. No. 17984, § 1, 4-2-2013; Ord. No. 18255, §§ 1—3, 10-8-2014; Ord. No. 18382, §§ 2a)—2g), 7-7-2015; Ord. No. 18246, §§ 1, 2, 9-16-2014; Ord. No. 18480, § 1, 3-22-2016; Ord. No. 18690, § 1, 6-13-2017; Ord. No. 18740, § 1, 11-14-2017; Ord. No. 18785, § 2, 5-1-2018; Ord. No. 18819, § 1, 7-24-2018; Ord. No. 19164, § 1, 4-13-2021; Ord. No. 019613, §§ 2—8, 4-23-2024)

15.08.125 Violation and penalty.

A. A person commits an offense if he violates or attempts to violate a provision of this chapter applicable to the person. A separate offense is committed each day during which an offense occurs. A person who commits an offense under this chapter is subject to the penalties set forth in Chapter 1.08 of this Code.

B. Prosecution for an offense under this chapter does not prevent the use of other enforcement remedies or procedures by the city against a person charged with the offense. (Ord. 12241 § 1 (part), 1995)

15.08.130 Right-of-way used by certificated telecommunications providers.

A. This section regulates the use of city right-of-way by certificated telecommunications providers. This section shall be construed under and in accordance with the laws and regulations of the State of Texas and the City Charter and City Code to the extent that such Charter and City Code are not in conflict with or in violation of the Constitution and laws of the United States or the State of Texas.

B. Definitions. For the purpose of this section, the following definitions apply to the following terms:

1. "Certificated telecommunications provider," hereinafter "Provider," means a person who has been issued a certificate of convenience and necessity, certificate of operating authority, or service provider certificate of operating authority by the commission to offer local exchange telephone service.

2. "Commission" means the public utility commission.

3. Facilities.

4. "Street", or "public way" or "public right-of-way" or "public rights-of-way" or "rights-of-way" or "right-of-way" means the surface of, and the space above and below a public street, road, highway, freeway, land, path, public way or place, alley, court, boulevard, parkway, drive, or other easement now or hereafter held by or under the control of the city, to which the city holds the property rights in regards to the use of utilities.

5. "U.S.C." means United States Code.

C. Purpose. No provider shall commence or continue with the construction, installation or operation of facilities within the right-of-way in the city except as provided by the ordinances of the city and the directives of the public works department.

D. Registration and Construction Permits.

1. Registration. In order to protect the public health, safety and welfare, all providers using the right-of-way will register with the City of El Paso Public Works Department. Registration and permits will be issued in the name of the person who will own the facilities. Registration with the city must be renewed annually during January. If a registration is not renewed, the facilities of the user will be deemed to have been abandoned. When any information provided for the registration changes, the user will inform the City of El Paso no more than thirty (30) commission days after the date the change is made. Registration information submitted to the city shall include:

a. The name of the provider;

b. The name, address and telephone number of people who will be contact person(s) for the provider;

c. A copy of the certificate issued by the commission;

d. The name, address and telephone number of any contractor or subcontractor who will be working in the right-of-way on behalf of the provider;

e. The name(s) and telephone number of an emergency contact who shall be available twenty-four hours a day;

f. Proof of insurance and bonds:

i. Provider must submit a certificate of liability insurance in the amount of six million dollars; one million dollars ($1,000,000.00) primary plus five million dollars ($5,000,000.00) umbrella or other securities as acceptable to the director of public works or his/her designee for the city. The city shall be named as additional insured on such certificate,

ii. The coverage must be on an "occurrence" basis and must include coverage for personal injury, contractual liability, premises liability, medical damages, underground, explosion and collapse hazards,

iii. Each policy must include a cancellation provision in which the insurance company is required to notify the city in writing not fewer than thirty days before canceling, failing to renew, or reducing policy limits,

iv. The provider shall file with the public works department the required original certificate of insurance prior to any commencement of work. The certificate shall state the policy number; name of insurance company; name and address of the agent or authorized representative of the insurance company; name, address and telephone number of insured; policy expiration date; and specific coverage amounts;

g. Provider shall file a surety bond which will be valid prior to the commencement of any construction through one full year after the completion of the construction from a surety company authorized to do business in the State of Texas in the amount of the estimated amount of the value of the work to be performed that year to guarantee that the restoration of the right-of-way in the event the applicant leaves a job site in the right-of-way unfinished, incomplete or unsafe.

2. Construction Permits.

a. No provider shall perform any construction or installation of facilities in the right-of-way without first obtaining a construction permit, except as provided herein. The permit will be in the name of the person who will own the facilities to be constructed. The permit application must be completed and signed by a representative of the provider.

b. Emergency responses related to existing facilities may be undertaken without first obtaining a permit; however the public works department must be notified in writing by the next business day of any construction related to an emergency response; including a reasonably detailed description of the work performed in the right-of-way and an updated map of any facilities that were moved.

c. The phrase "construction or installation of facilities" does not include repair or maintenance of existing facilities unless such repair or maintenance requires the breaking of pavement or the closure of a nonresidential traffic lane; or the installation of facilities necessary to initiate service to a customer's property or excavation or boring.

d. The construction permit shall state to whom it is issued, location of work, location of facilities, dates and times work is to take place and any other conditions set out by the director of public works or his/her designee.

e. The person requesting a permit will provide the director of public works or his/her designee with documentation in the format specified by the public works department describing:

i. The proposed, approximate location and route of all facilities to be constructed or installed and the provider's plan for right-of-way construction;

ii. Engineering plans which will be on a scale of one inch (1″) equals fifty feet (50′) unless otherwise approved by the public works department;

iii. Detail of the location of all right-of-way and utility easements which provider plans to use;

iv. Detail of all existing utility facilities, horizontally and vertically, in relationship to provider's proposed route;

v. Detail of what provider proposes to install, such as pipe size, number of interducts, valves, etc;

vi. Detail of plans to remove and replace asphalt, concrete in street in accordance with city standards;

vii. Drawings of any bores, trenches, handholes, manholes, switch gear, transformers, pedestals, etc. including depth notation;

viii. Handhole and/or manhole typicals of type of manholes and/or handholes provider plans to use or access;

ix. Complete legend of drawings submitted by provider;

x. Five sets of engineering plans must be submitted with permit application;

xi. The name, address and phone numbers of the contractor or subcontractor who will perform the actual construction, including the name and telephone number of an individual with the contractor who will be available at all times during construction;

xii. The construction and installation methods and materials to be employed for the protection of existing structures, fixtures, and facilities within or adjacent to the right-of-way, and the dates and times work will occur, all of which (methods, dates, times, etc.) are subject to approval of the Director of Public Works or his/her designee;

xiii. A statement that proof of insurance, bond or other required financial information is current and on file.

f. All construction and installation in the right-of-way shall be in accordance with the construction permit for the facilities. The director of public works or his/her designee shall be provided access to the work and to such further information as he or she may reasonably require to assure compliance with the permit.

g. A copy of the construction permit and approved engineering plans shall be maintained at the construction site and made available for inspection by the director of public works or his/her designee at all times when construction or installation work is occurring.

h. All construction or installation work authorized by permit must be completed in the time specified in the construction permit. If the work cannot be completed in the specified time periods, the provider may request an extension from the director of public works or his/her designee.

i. A copy of any permit or approval issued by federal or state authorities for work in federal or state right-of-way located in the City of El Paso will be posted at work site.

j. A request for a permit must be submitted at least fifteen working days before the commencement of work proposed in the request, unless waived by the director of public works or his/her designee.

k. Requests for permits will be approved or disapproved by the director of public works or his/her designee within a reasonable time of receiving all the necessary information. The director of public works or his/her designee will use his/her best efforts to approve or disapprove a request for permit as soon as possible.

l. The public works department can request a pre-construction meeting with the provider and his construction contractor.

m. Permit applications are required for construction on new, replacement or upgrading of the provider's facilities in the right-of-way either aerial or underground.

E. Construction Standards.

1. Department of Public Works must be notified twenty four hours in advance that construction is ready to proceed by either the provider, his contractor or representative.

2. All construction shall be in conformance with city codes and applicable local, state and federal laws. The following shall be done and not by way of limitations:

a. Three by three feet information signs stating the identity of the person doing the work, telephone number and provider's identity and telephone number shall be placed at the location where construction is to occur not less than forty-eight

hours prior to the beginning of work in the right-of-way and shall continue to be posted at the location during the entire time the work is occurring.

b. Erosion control measures (i.e. silt fence) and advance warning signs, markers, cones and barricades must be in place before work begins.

c. Provider must show proof of EPA approved plans relating to storm water and erosion when applicable or a letter stating they are not required to obtain such plans.

d. Lane closures on major thoroughfares are permitted between 8:30 a.m. and 4:00 p.m. only, unless the public works department grants prior approval. Arrow boards will be required on lane closures, with all barricades, advance warning signs and 36 inch reflector cones placed according to the specifications of the public works department.

e. Provider is responsible for the workmanship and any damages by a contractor or subcontractor. A responsible representative of the provider will be available to public works at all times during construction.

f. permittee shall be responsible for storm water management erosion control that complies with city, state and federal guidelines. Requirements shall include, but not be limited to, silt fencing around any excavation that will be left overnight, silt fencing in erosion areas until a reasonable amount of vegetation is established as determined by the department of public works, barricade fencing around open holes, and high erosion areas will require wire backed silt fencing.

g. Provider or contractor or subcontractor will notify the public works department immediately of any damage to other utilities, either city or privately owned.

h. When a street or sidewalk cut is required, prior approval must be obtained from the public works department and all requirements of the public works department shall be followed. Repair of all street and sidewalk removals must be made promptly to avoid safety hazards to vehicle and pedestrian traffic.

i. Installed facilities must not interfere in any manner with city or other utilities or facilities.

j. New nonmunicipal utilities must be installed at a minimum of six feet depth, unless a lesser depth is approved by the public works department.

k. All directional boring shall have locator place bore marks and depths while bore is in progress. Locator shall place mark at each stem with paint dot and depth at least every other stem.

l. The working hours in the rights-of-way are 7:00 a.m. to 6:00 p.m., Monday through Friday. Work that needs to be performed after 6:00 p.m. Monday through Friday must be approved in advance by the public works department. Any work performed on Saturday must be approved twenty-four hours in advance by the public works department. Directional boring is permitted only Monday through Friday, 7:00 a.m. to 6:00 p.m., unless approved in advance. No work will be done, except for emergencies, on city holidays.

m. Contractors working for provider are responsible for obtaining line locates from all affected utilities prior to any excavation.

n. Provider will be responsible for verifying the location both horizontal and vertical of all affected facilities whether by potholing or hand digging prior to any excavation or boring with the exception of work involving lane closures, as discussed above.

o. Placement of all manholes and/or handholes must be approved in advance by the public works department.

F. "Plans of Record" Plans.

Providers will provide the public works director or his/her designee with "plans of record" (also called "as built" plans) within ten days of completion of facilities in the right-of-way and annually thereafter. Providers who have facilities in the right-of-way existing as of the date of this ordinance and who have not provided "plans of record" plans, shall do so not later than thirty days after the passage of this ordinance. The plans shall be provided to the city in the format specified by the public works director or his/her designee and with

as much detail and accuracy as required by the public works director. All the criteria specified for plans submitted for the initial permit will be required for the plans of record. Submittal of "plans of record" shall be in digital formatting as well as written or in any other format requested by the public works department.

G. Conformance with Public Improvements.

Whenever by reasons of widening or straightening of streets, water or sewer line projects, or any other public works projects (e.g. install or improve storm drains, water lines, sewer lines, etc.) it shall be deemed necessary by the governing body of the city to remove, alter, change, adapt or conform the underground or overhead facilities of a right-of-way user, such alterations shall be made by the owner of the facilities at their expense within thirty days from receipt of notice to make the alterations, unless a different schedule has been approved by the public works director or his/her designee. Facilities not moved after thirty days or within the approved schedule shall be deemed abandoned.

H. Improperly Installed Facilities.

1. Any person doing work in the city right-of-way shall properly install, repair, upgrade and maintain facilities.

2. Facilities shall be considered to be improperly installed, repaired, upgraded or maintained if:

a. The installation, repairs, upgrade or maintenance endangers people;

b. The facilities do not meet the applicable city codes;

c. The facilities are not capable of being located using standard industry practices;

d. The facilities are not located in the proper place in accordance with the directions provided by the public works department; or

e. The facilities are placed in an area that interferes with city owned facilities such as water or sewer lines or streets. Privately owned facilities shall be considered to interfere with city owned facilities if the privately owned facility is within three feet horizontally. Public works may direct permittees to be additional distance or separation from city utilities. Nothing in this section shall diminish the authority of public works to direct specific placement of specific lines.

I. Type of Facilities.

1. The public works director may require or approve the location of facilities underground.

2. When poles are used, the type of poles, location, depth, upgrades, etc. shall be subject to the approval of the public works department.

3. Public works director or his/her designee may approve size of facilities to be installed or require proof of need to install the size of system requesting to be permitted.

J. Restoration of Property.

1. Providers shall restore property affected by construction of facilities to a condition that is equal to or better than the condition of the property prior to the performance of the work. Restoration must be approved by the public works department.

2. Restoration must be to the reasonable satisfaction of the public works department. The restoration shall include, but not be limited to:

a. Replacing all ground cover with equal to the type of ground cover damaged during work or better either by sodding or seeding, as directed by public works;

b. Installation of all manholes and handholes, as required;

c. Backfilling all bore pits, potholes, trenches or any other holes shall be done daily, unless other safety requirements are approved by public works;

d. Leveling of all trenches and backhoe lines;

e. Restoration of excavation site to city specifications;

f. Restoration of all landscaping, ground cover, and sprinkler systems.

3. All locate flags shall be removed during the clean up process by the permittee or his/her contractor at the completion of the work.

4. Restoration must be made in a timely manner as specified by approved public works schedules and to the satisfaction of the public works director or his/her designee. If restoration is not satisfactory and performed in a timely manner all

work in progress, except that related to the problem, including all work previously permitted but not complete will be halted and a hold on any permits not approved until all restoration is complete.

K. Revocation or Denial of Permit.

If any of the provisions of this ordinance are not followed, a permit may be revoked by the public works director or his/her designee. If a person has not followed the terms and conditions of this ordinance in work done pursuant to a prior permit, no new permits may be issued until corrective action has been completed.

L. Penalties.

1. Criminal Penalties.

a. Any violation or failure by the provider or person in control of the work to abide by, and comply with, any provision or requirement of this section shall be violation of city ordinance, and shall be punished as a Class C Misdemeanor, subject to a fine up to five hundred dollars ($500.00) per occurrence, unless otherwise provided by state law.

b. Each day upon which there exists a violation of this chapter, or a failure to abide by, or comply with, any provision or requirement of this chapter, shall constitute a separate occurrence, and may subject the offender to separate criminal penalties.

c. Prosecution pursuant to this section is in addition to and does not supplant other remedies.

2. Civil Penalties.

a. Civil penalties may be imposed for the violation of any provision of this chapter, as follows:

i. Up to one thousand dollars ($1,000.00) for each violation, and each day of a continuing violation may be considered a new violation; and/or

ii. If applicable, default and revocation of any or all permits granted to allow work in the rights-of-way, subject to the procedural guidelines noted in this chapter and any agreement which applies to the right-of-way user, and farther subject to any limitations imposed by federal or state law.

b. In imposing the penalties and the amount the city may weigh all applicable factors, such as damages caused by the violation, reasons for the violation, the seriousness of the violation, and all other factors.

c. Monetary civil penalties may be imposed in the manner prescribed by either local or state law.

d. In addition, the city council may order specific performance of any actions required by this chapter or required by a franchise, license, or permit, including the permit authorizing work to be performed in the right-of-way, or any other agreement or authorization. (Ord. 14202 § 1, 1999)

15.08.140 City wayfinding program.

A. Purpose. The purpose of these provisions is to establish a city wayfinding program that will provide information to the public on key areas of interest within the city and enable the public to safely and efficiently arrive at and maneuver within those areas of interest. Establishment of the city wayfinding program will help to achieve the following goals:

1. Develop a system that will assist the public identify the location of areas of interest within the city.

2. Identify pathways for vehicular and pedestrian traffic into and out of the areas of interest.

3. Identify and direct vehicular traffic to parking areas.

4. Identify pedestrian pathways from parking areas to amenities and events within the areas of interest.

5. Create an awareness of destinations and promote those areas thereby creating a safer and more user friendly environment that will enhance the visitor's experience and encourage more pedestrian and/or bicycle traffic.

6. Reinforce community identity and promote tourism.

B. Definition. "Wayfinding sign" means a sign, map, or marker designed, constructed, installed and managed by the city located on city property or right-of-way placed by the city that guides the

traveling public to key civic, cultural, visitor, and recreational destinations; educational, scholastic or artistic events; community or public interest activities or destinations; designated or recognized civic routes or trails; areas of historical or archaeological significance; or trade shows, events and festivals. Any sponsorship information contained on a wayfinding sign shall be limited to twenty percent of the sign and shall only contain the name of the sponsor.

C. Design standards. To insure quality and consistency, the city development department shall establish design standards for the wayfinding signs to include the following:

1. A standard template for graphical design and presentation of content.

2. All signs shall contain the City of El Paso logo. Upon approval of the city manager, other sponsorship logos may also be placed on the sign, but the sponsorship must be a person, business or entity within the informational area of the wayfinding sign.

3. Size of the sign and method of construction.

D. Location. The city development department shall establish a location system for wayfinding signs. By resolution, the city council may establish areas of interest for purposes of determining where wayfinding signs are placed.

E. The city may contract out with a third party for management of the city's wayfinding program, provided that the design, construction and installation is in accordance with the provisions of this section, to include the standards established by the city development department.
(Ord. No. 17855, § 1, 8-21-2012)

15.08.150 Shared mobility devices.

A. Definitions. For purposes of this section, the following terms have the following definitions.

1. "Director" means the person designated by the city manager in charge of overseeing the enforcement of this section.

2. "Electric personal assistive mobility device" means a two non-tandem wheeled device designed for transporting one person that is self-balancing and propelled by an electric propulsion system with an average power of seven hundred fifty watts or one horsepower.

3. "Non-personally identifiable information" or "non-PII" means data or information that is anonymous.

4. "Person" means a natural person as well as any entity or organization formed under the laws of any state in the United States or abroad.

5. "Permit" means a permit issued by the director under this section.

6. "Public right-of-way" means any portion of a street or sidewalk dedicated to the City of El Paso for the use of the public.

7. "Risk manager" means the person designated by the city manager as such.

8. "Shared use mobility device(s)" means a motor driven, or non-motor driven, bicycle, scooter, electric personal assistive mobility device, or other similar device made available by a person to the public for rent regardless of whether a fee is charged for the rental of such device. The definition applies regardless of whether the shared use mobility device is dock less or must be returned to a docking station.

B. Prohibition. A person shall not place a shared use mobility device on the public right-of-way without obtaining a permit under this section of the El Paso City Code. A person who obtains a permit under this section shall abide by all requirements prescribed under this section as well as all regulations adopted by the director under the authority granted to the director under this section.

C. Permit. A person who wants to place a shared use mobility device on the public right-of-way shall apply for a permit on an application form as required by the director. The director shall issue a permit to a person that complies with requirements of this section and any regulations adopted by the director pursuant to this section. The director shall not issue a permit to a person that does not comply with the requirements of this section or any regulations adopted by the director pursuant to this section. A person is not eligible to

apply for a permit for one year following a revocation of a permit under this section. Unless terminated earlier as provided under this section, all permits issued under this section expire after twelve months of issuance regardless of the date such permit is issued. No permit shall be issued to a person owing ad valorem taxes to the city or who has defaulted on an agreement with the city within five years preceding the application for a permit under this section. Notwithstanding anything to the contrary, a permit may only be issued to a person who owns the shared use mobility devices for which the permit is requested. All application forms and documents under this section must be executed by the owner of the shared use mobility devices. Nothing in the section prohibits city council from amending this section to change the expiration date of all permits.

D. Regulations and Authority of Director. The director is authorized to perform the following:

1. Adopt, amend, and repeal regulations for the use, deployment, operation, hours of operation, maintenance, disposal of batteries, customer service, terms of use, public education, identification, contact information, personnel, equipment, speed limits, placement and parking, proof of ownership, timeframes for compliance, advertisement, redistribution, and removal of shared use mobility devices. The director is also authorized to adopt, amend, and repeal regulations regarding the collection of non-personally identifiable information data including, but not limited to, the use and sharing of data with the City of El Paso. The city shall only use this information for the purposes of evaluating public transportation improvements, other public improvements, and public services. The city may release such non-PII pursuant to any request made under the Texas Public Information Act.

2. Establish an application form to ensure that all requirements of this section, and any regulations adopted by the director pursuant to this section, are met.

3. Establish and modify boundaries within the City of El Paso for placement of shared use mobility devices.

4. Establish limits on the number and deployment of shared use mobility devices allowed within the boundaries established by the director. The director shall consider all factors, including but not limited to, the need or demand of shared use mobility devices within the boundaries established by the director. The director may request in the application form any relevant data necessary to allow the director to evaluate requests to increase the number of shared use mobility devices allowed under a permit.

5. Require applicants to show proof of compliance with provisions of this section or regulations adopted by the director.

6. Prohibit the placement, or require the immediate removal, of shared use mobility devices in certain areas of the city to accommodate any events or construction taking place on the public right-of-way or address any emergencies that require emergency traffic control.

7. Deny a permit for failure to comply with this section or the regulations adopted by the director under this section. The director may deny a permit for up to one year following a person's failure to comply with this section or the regulations adopted by the director under this section.

8. Revoke a permit after three violations by a person of any requirements under this section or the regulations adopted by the director under this section. Notwithstanding anything to the contrary, the director shall revoke a permit after the first failure by a person to comply with the requirements of subsections P. and G. below.

9. Deny or revoke a permit upon discovery of any false information submitted by a person under this section.

10. Remove any shared use mobility devices placed on the public right-of-way in violation of this section or any regulation adopted by the director under this section. The director shall assess all costs incurred by the city to the owner of the shared use mobility device.

E. Proof of Ownership. A person shall submit proof of ownership for all shared use mobility devices under a permit.

F. Insurance Requirements. The risk manager shall establish the coverages and amounts of insurance that will be required to obtain a permit under this section. A person applying for a permit shall submit, with the application, a copy of the following documents showing proof of compliance with the coverages and amounts established by the risk manager: a certificate of insurance and a complete insurance policy with all endorsements. A person shall maintain the coverages and amounts of insurance as established by the risk manager for the duration of the permit. A person shall add the City of El Paso as an additional insured to all insurance policies under this section.

G. Indemnification and Release Requirements. Prior to obtaining a permit, a person applying for a permit shall agree in writing to an indemnification and release agreement in the form approved by the city's risk manager after review by the city attorney's office. Refusal to indemnify the city, as required under the indemnification and release agreement, will result in a revocation of a permit and future denial of a permit under this section.

H. Bond Requirements. The risk manager shall establish bond or irrevocable letter of credit requirements to cover the following: any damages by the public right-of-way caused by a shared use mobility device, costs of removing from the public right-of-way a shared use mobility device, and costs of storing and disposing of any shared use mobility devices. A person shall comply with the bond requirements or irrevocable letter of credit requirements established in this section for the duration of a permit.

I. Fees Charged to Customers. A person holding a permit under this section shall clearly communicate rates to customers prior to the use of a device by any person.

J. Maintenance and Charging. A person shall not perform maintenance on any shared use mobility device or charge any shared use mobility device on a public right-of-way.

K. Non-Transferability. Permits issued under this section are not transferable.

L. No Property Rights. A permit does not grant any person an exclusive right to any portion of the right-of-way.

M. Enforcement. The director, a code enforcement officer, and/or a City of El Paso police officer are authorized to enforce the provisions of this section and the regulations adopted by the director under this section. A person authorized to enforce this section is authorized to remove/relocate shared use mobility devices that are left unattended in a manner that threatens the public safety or welfare. A person authorized to enforce this section is also authorized to require a person using a shared use mobility device to remove/relocate a shared use mobility device that is left in a manner that threatens the public safety or welfare.

N. Termination. Any permits issued under this section may be terminated by city council for a public purpose as determined by city council. This provision does not limit the authority of the director under this section.

O. Fees and Costs. City council may establish fees related to this section in the annual budget resolution, including but not limited to fees for the use of the public right-of-way, fees for processing claims, and fees for impoundment of a shared use mobility device, as may be permitted by law. In addition, the city council may establish fees sufficient to cover the costs of processing claims related to shared use mobility devices received by the city. A person applying for a permit, holding a permit, or appealing a denial or revocation of a permit under this section shall pay the fees in the amounts provided in the annual budget resolution adopted by city council.

P. Damages by Shared Use Mobility Device. A person shall be responsible for the costs incurred by the city in repairing any damages to the public right-of-way or any other property owned by the City of El Paso caused by a shared use mobility device owned by the person or by the use of a shared use mobility device owned by the person regardless of who the user of the shared

use mobility device is at the time the damage was caused. The city, at its sole discretion, may elect to repair any damage caused by a shared use mobility device and asses the costs to the owner of the shared use mobility device. The owner of a shared use mobility who receives an invoice from the city under this section shall pay the invoice within thirty calendar days of receiving the invoice. The director shall revoke the permit of a person who fails to comply with the requirements of this provision.

Q. Appeal. A person may appeal the denial or revocation of a permit under this section by submitting an appeal request in writing to the city manager, or designee, and paying the required appeal fee within fifteen calendar days of an action to deny or revoke a permit. The city manager, or designee, shall hold a hearing within thirty calendar days of receiving an appeal request and appeal fee. The city manager, or designee, shall review the denial of a permit or revocation of a permit for compliance with the requirements of this section and the regulations adopted by the director under this section. A decision by the city manager, or designee, is final. A person may also appeal the assessment of any damages under subsection P. above in the same manner as described herein provided that prior to the appeal hearing the person pays the invoice assessed under subsection P.

R. Headings. All headings in this section are for reference purposes only and do not control the meaning of any provision under this section.

S. Penalty. A person who violates a provision under this section may be subject to any and all of the following:

1. A person who violates any provision under this section shall be found guilty of a Class C misdemeanor and punished by a fine not to exceed five hundred dollars. Each day a person fails to comply with the provisions of this section constitutes a separate offense.

2. A person that violates any provision under this section may have a permit denied or revoked.

3. A person that violates any provision under this section may have the person's share use mobility devices removed by the city from the public right-of-way. Such removal shall be at the sole expense of the person owning the shared use mobility device and the city may employ any methods allowed under law to recover the expenses of removing from the public right-of-way and storing a removed shared use mobility device. A person shall pay all expenses incurred by the city in the removal of a shared use mobility device before the city releases the shared use mobility device to the person. Any shared use mobility devices that remain unclaimed for a period of thirty calendar days following removal from the public right-of-way shall be disposed of in accordance to applicable law.

T. Abatement. Nothing in this section limits the City of El Paso's right to abate an unlawful obstruction or use of a public right-of-way. The city may remove from the public right-of-way any items unlawfully placed on the public right-of-way and dispose of such item, including by sale, after thirty calendar days of notification to the owner or following a reasonable, but unsuccessful, attempt to locate the owner of such item. The city is entitled to retain any proceeds of a sale disposing of an item in order to cover the costs incurred by the city for removal and storage of such item.

U. Not Applicable. This section does not apply to the following: a person, or government entity, placing a shared use mobility device on the public right-of-way pursuant to a valid permit or authorization issued under any other section of the El Paso City Code; or a government entity placing a shared use mobility device on the public right-of-way pursuant to an interlocal or other similar agreement with the City of El Paso. A permit under this section does not authorize a person to place or operate a shared use mobility device on private property or property owned or controlled by any other governmental entity, school

district, or institution of higher education, including but not limited to the University of Texas at El Paso.

(Ord. No. 18899, § 1, 1-8-2019; Ord. No. 19012, § 1, 1-21-2020; Ord. No. 19134, § 1, 1-19-2021; Ord. No. 19281, § 1, 1-19-2022; Ord. No. 019433, § 1, 1-31-2023; Ord. No. 019451, § 1, 3-28-2023)

15.08.160 Mobile billboards.

A. Definitions. For purposes of this section, the following terms have the following definitions.

1. "Mobile billboard" means a motor vehicle or trailer, which is used for the display of general advertising for hire.

2. "Director" means the individual designated by the city manager in charge of overseeing the enforcement of this section.

3. "Applicant" means a natural person as well as any entity or organization authorized to do business in the State of Texas and County of El Paso.

4. "Permit" means a permit issued by the director under this section.

5. "Public right-of-way" means any portion of a street or sidewalk dedicated to the City of El Paso for the use of the public.

6. "Changeable electronic variable message sign (CEVM)" means a sign which uses electronic technology that is capable of displaying changeable or intermittent images, such as by turning on or off various lighting elements. The term includes any illuminated sign on which such illumination is not kept stationary or constant in intensity and color at all times when such sign is in use, or which changes the visual image more than one time per twenty-four-hour period. The term includes display technology such as LED (light emitting diode) or digital displays which can vary in color or intensity, or any system which is functionally equivalent even if the message is static. The term also includes any display, or device, which changes the "static" message or copy on the sign, in "slide show" fashion, by electronic means.

B. Prohibition. An applicant shall not operate a mobile billboard on the public right-of-way without obtaining a permit under this section of the El Paso City Code. An applicant who obtains a permit under this section shall abide by all requirements prescribed under this section as well as all regulations adopted by the director under the authority granted to the director under this section.

C. Permit. An applicant who wants to operate a mobile billboard on the public right-of-way shall apply for a permit on an application form as required by the director. The director shall issue no more than three permits to three applicants that comply with requirements of this section and any regulations adopted by the director pursuant to this section. The director shall not issue a permit to an applicant that does not comply with the requirements of this section or any regulations adopted by the director pursuant to this section. An applicant is not eligible to apply for a permit for one year following a revocation of a permit under this section. Unless terminated earlier as provided under this section, all permits issued under this section expire one year from date of permit issuance. A permit may be renewed by submitting updated documents and providing payment of the annual fee, in accordance with the approved special privilege development agreement. An applicant shall apply for renewal at least sixty days before the expiration of the registration. No permit shall be issued to an applicant owing ad valorem taxes to the city or who has defaulted on an agreement with the city within five years preceding the application for a permit under this section. Notwithstanding anything to the contrary, a permit may only be issued to an applicant who owns the mobile billboard for which the permit is requested. All application forms and documents under this section must be executed by the owner of the mobile billboard. Nothing in the section prohibits city council from amending this section to change the expiration date of all permits.

D. Regulations. Mobile billboards shall comply with the following:

1. Each applicant who has been issued a permit shall be limited to no more than three mobile billboard vehicles operating on city streets at one time.

2. Mobile billboards shall not contain sound.

3. CEVM mobile billboards are prohibited.

4. Any illumination shall comply with the city's dark sky ordinance.

5. Mobile billboards shall operate only on designated arterials, operating on local streets and freeways is prohibited.

6. Mobile billboards shall be prohibited from operating during the hours between 12:00 a.m. and 8:00 a.m.

7. Mobile billboards shall comply with the following dimensions:

a. The mobile billboard sign face area shall not exceed fourteen feet in height measured from the ground.

b. The mobile billboard sign face area shall not exceed twenty-two feet in length.

c. The mobile billboard sign face area shall not exceed two hundred twenty square feet in size.

8. The operation of mobile billboards shall be prohibited when sustained winds in excess of thirty-five miles per hour exist within the immediate vicinity of the mobile billboard or its proposed route.

9. The issued permit shall be displayed at all times in an open and conspicuous place on the premises of the permitted mobile billboard.

E. A permit may be denied for failure to comply with this section or the regulations adopted by the director under this section. The director may deny a permit for up to one year following a applicant's failure to comply with this section or the regulations adopted by the director under this section. A permit may be denied or revoked upon discovery of any false information submitted by an applicant under this section. The director may remove any mobile billboard placed on the public right-of-way in violation of this section or any regulation adopted by the director under this section.

F. Proof of Ownership and Insurance. An applicant shall submit proof of ownership and insurance for all mobile billboards under a permit and shall comply with all other applicable traffic laws and regulations.

G. Maintenance. Applicants shall ensure every mobile billboard is maintained in a condition to be operated safely upon city public rights-of-way. An applicant shall not perform maintenance on any mobile billboard on a public right-of-way.

H. Non-Transferability. Permits issued under this section are not transferable.

I. No Property Rights. A permit does not grant any applicant an exclusive right to any portion of the right-of-way.

J. Enforcement. The director, a city code enforcement officer, and/or a City of El Paso police officer are authorized to enforce the provisions of this section and the regulations adopted by the director under this section. An applicant authorized to enforce this section is authorized to remove mobile billboards that threaten the public safety or welfare. An applicant authorized to enforce this section is also authorized to require an applicant operating a mobile billboard to remove/relocate a mobile billboard that threatens the public safety or welfare.

K. Termination. Any permits issued under this section may be terminated by city council as determined by city council, at its sole and absolute discretion. This provision does not limit the authority of the director under this section.

L. Fees and Costs. City council may establish fees related to this section in the annual budget resolution, including but not limited to fees for the use of the public right-of-way, and fees for impoundment of a mobile billboard, as may be permitted by law.

M. Headings. All headings in this section are for reference purposes only and do not control the meaning of any provision under this section.

N. Penalty. An applicant who violates a provision under this section may have a permit denied or revoked.

O. Not Applicable. This section does not apply to the following: an applicant, or government entity, operating a mobile billboard on the public right-of-way pursuant to a valid permit or authorization issued under any other section of the El Paso City Code; or a government entity operating a mobile billboard on the public right-of-way pursuant to an interlocal or other similar agreement with the City of El Paso.

(Ord. No. 19301, § 1, 2-15-2022; Ord. No. 019435, § 1, 2-7-2023; Ord. No. 019608, § 1, 3-26-2024)

Chapter 15.10

DEPLOYMENT OF NETWORK NODES IN THE RIGHT-OF-WAY

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ARTICLE I. GENERAL

15.10.010 Purpose.

A. The city has been delegated by the State of Texas the fiduciary duty to manage the public rights-of-way for the benefit of the health, safety, and welfare of the citizens of the city. As proprietor and manager of the public rights-of-way, the city enacts these guidelines, procedures, and design manual, as expressly allowed by Texas Local Government Code, Chapter 284.

B. The guidelines, procedures, and the design manual codified within this chapter, are adopted in furtherance of the city's authority to manage the public right-of-way to ensure the health, safety, and welfare of the public, and to require from network providers fair and reasonable compensation for use of the public right-of-way and for collocation on service poles.

C. Any and all facilities selected for the installation of provider's wireless facilities shall not be considered "personal wireless service facilities" as that term is defined at 47 U.S.C. § 332(c)(7)(C)(ii), or a "base station" as that term is defined at 47 CFR § 24.5. The limitations applicable to local governments with regard to the placement, construction, and modification of

"base stations" apply to the city with regard to wireless facilities located in the public right-of-way.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.020 Applicability.

The provisions of this chapter apply to any sitings, installations, and collocations in, on, over, or under the public rights-of-way of network nodes, node support poles, micro network nodes, distributed antenna systems, transport facilities, microwave communications, or other wireless facilities, by whatever nomenclature, whether they are installed pursuant to Texas Local Government Code Chapter 284, or pursuant to an agreement with the city, or installed as may otherwise be allowed by law.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.030 Definitions.

For the purposes of this chapter, the following terms, phrases, words, and their derivations, shall have the meaning given herein, unless more specifically defined within a specific article or paragraph of this chapter. When not inconsistent with the context, words used in the present tense include the future tense, words in the plural number include the singular number, and words in the singular number include the plural number. The words "shall" and "will" are mandatory and "may" is permissive. Words not defined shall be given their common and ordinary meanings.

"Abandon" and its derivatives means, with regard to wireless facilities and transport facilities, and all supporting equipment installed in the public right-of-way (including by way of example but not limited to: poles, wires, conduits, manholes, handholes, cuts, network nodes, node support poles, ground equipment, or any portion thereof) that have been left by a provider in an unused or nonfunctioning condition for more than one hundred eighty consecutive days unless, after notice to provider, provider has established to the reasonable satisfaction of city that the applicable facility, or portion thereof, is still in active use.

"Affiliate" means each person or entity that falls into one or more of the following categories: (a) a person or entity having, directly or indirectly, a controlling interest in a provider; (b) a person or entity in which provider has, directly or indirectly, a controlling interest; or (c) a person or entity that directly or indirectly is controlled by a third party that also directly or indirectly controls a provider.

"Antenna" means communications equipment that transmits or receives electromagnetic radio frequency signals used in the provision of wireless services.

"Applicable codes" means: (i) all applicable City Code provisions, policies, and guidelines; (ii) all applicable engineering and safety standards governing the installation, maintenance and operation of facilities and the performance of all work in or around public right-of-way and includes the most current versions of the National Electric Safety Code ("NESC"), the National Electrical Code ("NEC"), the Texas Health and Safety Code, Chapter 752, the rules and regulations of the Occupational Safety and Health Act ("OSHA"); and (iii) any applicable lawful rules, requirements or orders now in effect or hereafter issued by city or other authority having jurisdiction.

"Chapter 284" means Texas Local Government Code, Chapter 284.

"Collocate" and "collocation" mean the installation, mounting, maintenance, modification, operation, or replacement of network nodes in a public right-of-way on or adjacent to a pole.

"Concealment" or "camouflage" means any wireless facility or pole that is covered, blended, painted, disguised, camouflaged, or otherwise concealed such that it blends into the surrounding environment and is visually unobtrusive. A concealed or camouflaged wireless facility or pole includes any wireless facility or pole approved by the city as conforming to the surrounding area in which the wireless facility or pole is located and may include, but is not limited to, a wireless facility or pole that is hidden beneath a facade blended

with surrounding area design, painted to match the supporting area, or disguised with artificial tree branches.

"Days" means calendar days unless otherwise specified.

"Decorative pole" means any streetlight pole specially designed and placed for aesthetic purposes and on which no appurtenances or attachments, other than specially designed informational or directional signage or temporary holiday or special event attachments, have been placed or are permitted to be placed according to nondiscriminatory city ordinances.

"Design district" means an area that is zoned or otherwise designated by the city, and for which the city maintains and enforces unique design and aesthetic standards on a reasonable, uniform and nondiscriminatory basis. Design districts within the city are: Union Plaza, Rim Neighborhood Conservation Overlay, Smart Code Zoned properties, the Downtown District. Additional areas may be designated as design districts by the city at any time.

"Disaster emergency," or "disaster," or "emergency" means an imminent, impending, or actual natural or human-induced situation wherein the health, safety, or welfare of the residents of the city is threatened, and includes, but is not limited to, any declaration of emergency by city, state, or federal governmental authorities.

"Distributed antenna system" or "DAS" means a type of network node.

"Easement" means and shall include any public easement or other compatible use created by dedication, or by other means, to the city for public utility purposes, or any other purpose whatsoever. Easement shall include a private easement used for the provision of utilities.

"Excavation permit" means a permit required under Chapter 13.08, El Paso Code of Ordinances, for cuts or excavations in the public right-of-way and/or any construction activities in the public right-of-way.

"Ground equipment" means any part of a wireless facility or associated equipment that is located on the surface of the ground and, if included in an approved permit application or otherwise approved by the city in writing, an incidental structure to support the wireless facility.

"Highway right-of-way" means right-of-way adjacent to a state or federal highway.

"Historic district" means "historic district" as defined in Section 20.20.020 of the City Code, now or hereafter in effect and areas designated as historic under state or federal law. Historic districts within the city are Austin Terrace, Chihuahuita, Downtown, Magoffin, Manhattan Heights, Mission Trail, Old San Francisco, Sunset Heights, Ysleta, and the several National Register Districts Rio Grande National Register District and the Montana Avenue National Register District. Additional areas may be designated as historic districts by the city at any time.

"Historic landmark" means "historic landmark" as defined in Section 20.20.020 of the City Code, now or hereafter in effect.

"Location" means the city-approved and lawfully permitted location for the network node or node support pole.

"Macro tower" means a guyed or self-supported pole or monopole greater than the height parameters prescribed by Chapter 284 and that supports or is capable of supporting antennas.

"Micro network node" means a network node that is not larger in dimension than twenty-four inches in length, fifteen inches in width, and twelve inches in height, and that has an exterior antenna, if any, not longer than eleven inches.

"Modification" or "modify" means any work in the public right-of-way, or alteration of a wireless facility that is not substantially similar in size or is a change in the wireless facility's location in the public right-of-way or its physical position on the pole, except those alterations or changes set forth in Section 15.10.330 that are excepted from requiring a permit under Chapter 284, which do not constitute modifications hereunder.

"Municipal park" means an area that is zoned or otherwise designated by city ordinance or has been dedicated to the city for use as a public park for the purpose of recreational activity.

"Municipally-owned utility pole" means a utility pole owned or operated by a municipally-owned electric utility, as defined by Texas Utilities Code, § 11.003, and located in a public right-of-way.

"Network node" means equipment at a fixed location that enables wireless communications between user equipment and a communications network. The term:

A. Includes:

1. Equipment associated with wireless communications;

2. A radio transceiver, an antenna, a battery-only backup power supply, and comparable equipment, regardless of technological configuration; and

3. Coaxial or fiber-optic cable that is immediately adjacent to and directly associated with a particular collocation; and

B. Does not include:

1. An electric generator;

2. A pole; or

3. A macro tower.

"Network provider" means:

A. A wireless service provider; or

B. A person that does not provide wireless services and that is not an electric utility but builds or installs on behalf of a wireless service provider:

1. Network nodes; or

2. Node support poles or any other structure that supports or is capable of supporting a network node.

"Node support pole" means a pole installed by a network provider for the primary purpose of supporting a network node.

"Permit" means the city's written authorization for the use of public right-of-way or collocation on a service pole for a network provider to perform an action or initiate, continue, or complete a project pursuant to the requirements of this chapter. A permit shall not include an excavation permit.

"Pole" means a service pole, municipally-owned utility pole, node support pole, or utility pole.

"Pre-permit survey" means all work or operations required by applicable codes or the city to determine whether the proposed location of a network node has the structural and spatial ability to accommodate network nodes and related equipment. Such work includes, but is not limited to, field inspection, loading calculations, and administrative processing. The pre-permit survey shall be coordinated with city and include the provider's professional engineer.

"Private easement" means an easement or other real property right that is only for the benefit of the grantor and grantee and their successors and assigns.

"Provider" has the same meaning as "network provider."

"Public right-of-way" or "right-of-way" means the area on, below, or above a public roadway, highway, street, public sidewalk, alley, waterway, or utility easement in which the city has an interest. The term does not include:

A. A private easement; or

B. The airwaves above a public right-of-way with regard to wireless telecommunications.

"Scenic area" means "scenic area" as defined in Section 20.02.836 of the City Code, now or hereafter in effect. "Scenic areas" within the city are also designated as "design districts."

"Scenic corridor" means "scenic corridor" as defined in Section 20.02.838 of the City Code, now or hereafter in effect. "Scenic corridors" within the city are also designated as "design districts."

"School" means an educational institution that offers a course of instruction for students in one or more grades from kindergarten through grade twelve.

"Service pole" means a pole, other than a municipally-owned utility pole, owned or operated by the city and located in a public right-of-way, including:

A. A pole that supports traffic control functions;

B. A structure for signage;

C. A pole that supports lighting, other than a decorative pole; and

D. A pole or similar structure owned or operated by the city and supporting only network nodes.

"Small cell" is included as a type of network node.

"Street" means only the paved portion of the public right-of-way used for vehicular travel, being the area between the inside of the curb to the inside of the opposite curb, or the area between the two parallel edges of the paved roadway for vehicular travel where there is no curb. A street is generally part of, but smaller in width than the width of, the entire right-of-way. A right-of-way may include sidewalks and utility easements, but a street does not. A street does not include the curb or the sidewalk, if either are present at the time of a permit application or if added later.

"Streetlight pole" means any standard-design concrete, fiberglass, metal, or wooden pole used for street lighting purposes, owned or operated by city, that is capable of supporting network nodes.

"TAS" means Texas Accessibility Standards.

"Traffic control device" means all signs, signals, markings, or devices placed or erected by the city or a public body having jurisdiction for the purpose of regulating, warning, or guiding traffic.

"Traffic signal" means any device, whether manually, electrically, or mechanically operated by which traffic is alternately directed to stop and to proceed.

"Transport facility" means each transmission path physically within a public right-of-way, extending with a physical line from a network node directly to the network, for the purpose of providing backhaul for network nodes.

"Underground utility district" means an area where poles, overhead wires, and associated overhead or above-ground structures have been removed and buried, or have been approved for burial underground pursuant to city ordinances, zoning regulations, state law, private deed restrictions, and other public or private restrictions, that prohibit installing above-ground structures in a public right-of-way.

"Utility pole" means a pole that provides:

A. Electric distribution with a voltage rating of not more than thirty-four and one-half kilovolts; or

B. Services of a telecommunications provider, as defined by Section 51.002, Utilities Code.

"Wireless facilities" means micro network nodes, network nodes, and node support poles, as defined herein and in Chapter 284.

"Wireless service" means any service, using licensed or unlicensed wireless spectrum, including the use of Wi-Fi, whether at a fixed location or mobile, provided to the public using a network node.

"Wireless service provider" means a person or entity that provides wireless service to the public. (Ord. No. 18717, § 1, 8-22-2017)

ARTICLE II. APPLICATIONS AND PERMITTING

15.10.040 Access to public right-of-way.

A. Subject to the provisions of this chapter, city will issue permits to providers authorizing providers to install and maintain wireless facilities and transport facilities in or on public right-of-way in accordance with Chapter 284. The locations at which provider's wireless facilities and transport facilities may be permitted, and the size and appearance of such wireless facilities, shall be determined in accordance with this chapter. Providers must also obtain an excavation permit in accordance with Chapter 13.08, City Code of Ordinances, if the installation of wireless facilities, transport facilities, or ground equipment involves excavation of the public right-of-way. If the requested location is to collocate a network node on a service pole, provider must also, prior to making application for such location, enter into a license agreement with the city for such collocation.

B. City will issue a permit(s) to provider only when city reasonably determines, in its sole judgment, that (i) provider meets all requirements set forth in this chapter, and (ii) such permit(s) comply with all applicable codes.

C. No use, however lengthy, of any public right-of-way, and no payment of any fees or charges required under this chapter, shall create or vest in provider any easement or other ownership or property right of any nature in any portion of the public right-of-way. After issuance of any permit, provider shall be and remain a mere licensee. Neither this chapter, nor any permit granted under this chapter, shall constitute an assignment of any of city's rights to the public right-of-way.

D. No part of provider's wireless facilities or transport facilities or other equipment constructed, modified, or erected, or placed on public right-of-way will become, or be considered by the city as being affixed to or a part of, the public right-of-way. All portions of provider's wireless facilities and transport facilities and other equipment constructed, modified, erected, or placed by provider on public right-of-way will be and remain the property of provider and may be removed by provider at any time.

E. Nothing in this chapter or in a permit granted hereunder shall be construed as granting provider any right to attach provider's wireless facilities or transport facilities at any specific location or facility or to compel city to grant provider the right to attach at any specific location or facility.

F. Subject to the provisions in Articles VI through VIII, this chapter does not in any way limit city's right to locate, operate, maintain or remove service poles or other city equipment or property in the manner that the city deems appropriate.

G. Provider is obligated to obtain all necessary certification, permitting, and franchising from federal, state and local authorities prior to making any installations of wireless facilities or transport facilities.

H. Subject to the provisions in Articles VI through VIII, nothing in this chapter shall be construed to require city to install, retain, extend, or maintain any service poles or other city equipment or property for use by the provider when such service poles or other city equipment or property are not needed for city's own requirements.

I. Subject to the provisions in Articles VI through VIII, nothing in this chapter shall limit, restrict, or prohibit city from fulfilling any agreement or arrangement regarding a service pole or other city equipment or property into which city has previously entered, or may enter in the future, with other entities, including, but not limited to, agreements or arrangements for the removal of wireless facilities.

J. Nothing in this chapter or in any permit granted hereunder shall be construed to grant provider the authority to lease, grant, or otherwise assign any rights under its permit to any other party without the written consent of the city.

K. In the event the city determines to deny the use by provider of any particular service poles or other city equipment or property or any particular location in the public right-of-way, such denial shall not be construed to be a prohibition on, or to have the effect of prohibiting, the provision of wireless services. Any such denial by the city shall be undertaken in its capacity as proprietor of the public right-of-way, and not in its regulatory capacity.

L. Any permit granted under this chapter is limited to the uses specifically authorized in the permit and any other use shall be considered a material breach of this chapter. Nothing in this chapter or in any permit granted hereunder shall be construed to require city to allow provider to use the public right-of-way after the termination of the applicable permit.

(Ord. No. 18717, § 1, 8-22-2017)

15.10.050 Fees and charges.

A. Provider shall pay the established fee for the following facilities:

1. Network nodes.
2. Node support poles.
3. Transport facility.

B. Provider shall pay the established recurring fees for the following facilities:

1. Network nodes.
2. Transport facility.

3. Collocation of network nodes on service poles.

C. All recurring fees are payable in advance and are due upon approval of the permit(s) by the city; no permit shall become effective until the fee has been paid. Initial amounts shall be pro-rated, based upon an annual due date of January 1 of each year.

1. For example, a network node permit approved by the city in August shall be effective upon payment in advance by the provider of 5/12 of the annual rental rate, or one hundred four dollars and seventeen cents. Thereafter, all payments of annually-recurring fees are due to the city by January 1 for the following calendar year.

2. For example, a transport facility permit approved by the city in August shall be effective upon payment by the provider of five months of the monthly rental amount, or one hundred forty dollars. Thereafter, payments for twelve months at a time are due to the city by January 1 for the following twelve months.

D. Provider shall maintain and submit annually to the city with each payment to the city, an inventory of provider's network nodes, node support poles, node support poles connected by transport facilities, and collocated network nodes. This information shall include complete and accurate GIS location information, maps, plans, equipment inventories, and other records related to provider's facilities. An inventory shall be effective from January 1 of each year. City reserves the right to compare the information contained on the inventory to any actual field inspection or survey conducted mutually. In the event that provider fails to submit an inventory, provider shall pay city, in addition to the monthly- or annually-recurring fees, all actual costs associated with city's performance of an inventory of provider's facilities.

1. If either provider or city subsequently discovers that provider has failed to pay the entire or correct amount of compensation due, the correct amount shall be paid by provider within thirty calendar days of such determination. Any overpayment to the city through error or otherwise will, at the sole option of the city, either be refunded to provider by the city within thirty days of such determination or offset against the next payment due from provider. Acceptance by either provider or city of any payment due under this section shall not be deemed to be a waiver by either of any claim of violation of this chapter, nor shall the acceptance by either of any such payments preclude either from later establishing that a larger amount was actually due or from collecting any balance due. Nothing in this section shall be deemed a waiver by either provider or city of its rights under law or equity.

2. Interest on late payments shall be calculated in accordance with the interest rate for customer deposits established by the Public Utility Commission of Texas in accordance with the Texas Utilities Code, Section 183.003, as amended for the time period involved.

3. The compensation payable to the city hereunder shall not be offset by any payment by provider to the city relating to ad valorem taxes.

E. The network node site rental rate set forth herein shall be adjusted on an annual basis, by an amount equal to one-half of the annual change, if any, in the Consumer Price Index. For purposes of this section, Consumer Price Index shall mean the annual revised Consumer Price Index for All Urban Consumers for Texas, as published by the Federal Bureau of Labor Statistics. The adjusted rate will be effective sixty days after the city provides written notice to providers of the new rate.

F. The recurring fees set forth herein shall be exclusive of, and in addition to, all ad valorem taxes, special assessment for municipal improvements, and other lawful obligations of the provider to the city.

G. When the city at its own expense has removed or remediated provider's wireless facilities or transport facilities pursuant to Articles VI and VII or provider is otherwise required to reimburse the city hereunder, the provider shall remit payment to the city within thirty days of the date of the invoice.

H. Upon provider's termination of the use of any service pole or public right-of-way in accordance with the terms of a permit and this chapter, and provider peaceably surrendering the service pole or public right-of-way to the city in the same condition it was in on the date the permit(s) was granted, excepting ordinary wear and tear, there will be no compensation due to the city by provider for such location.

I. The city shall not disclose any confidential information reproduced for documentation of the inventory unless required by law. If the city receives a request to review or copy confidential information under the Texas Public Information Act or related law (the "Act"), the city shall comply with the requirements for handling third party information under the Act, including notifying the provider that a request to review or copy confidential information has been submitted to the city. Confidential information deemed subject to disclosure under the Act by the Attorney General of the State of Texas shall be disclosed.
(Ord. No. 18717, § 1, 8-22-2017)

ARTICLE III. DESIGN MANUAL

15.10.060 Applicability.

The provisions of this Article III, Design Manual, establish guidelines and requirements for the installation and construction of network nodes, new node support poles, transport facilities, and ground equipment in the public right-of-way. In addition, provider shall comply with all generally applicable ordinances of the city pertaining to the occupancy and use of public right-of-way, unless such provisions conflict with this chapter, in which case this chapter prevails. This Article III also governs the installation, construction, and modification of collocated network nodes on service poles.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.070 General requirements.

A. Wireless facilities shall be concealed or enclosed as much as possible in an equipment box, cabinet, or other unit that may include ventilation openings. External cables and wires hanging off a pole shall be sheathed or enclosed in a conduit, so that wires are protected and not visible or are visually minimized to the extent possible.

B. Wireless facilities must conform to the city's aesthetic or design standards for the proposed location, if any, unless otherwise approved by the city.

C. In order to minimize negative visual impact to the surrounding area, the hazard of poles adjacent to roadways, and the effect on property values, the city may deny a permit for a new node support pole if the requested location for new node support poles is not spaced apart from existing utility poles or node support poles at the same spacing as the spacing between utility poles in the immediate proximity, however when no other facilities are present in the location, but no less than at a minimum three hundred feet from a utility pole or another node support pole to minimize the hazard of poles adjacent to road ways and to minimize effect on property values and aesthetics on the area.

D. Provider shall comply with and observe all applicable city, state, and federal historic preservation laws and requirements.

E. When a permit is issued provider shall install and maintain its wireless facilities and transport facilities, and all ground equipment, in accordance with the city's requirements and specifications. All of provider's wireless facilities, transport facilities, and ground equipment must comply with all applicable codes.

F. Provider shall be responsible for the installation and maintenance of its wireless facilities, transport facilities, and related ground equipment. Provider shall install such facilities in a good and workmanlike manner and in accordance with the requirements promulgated by the city, as such may be amended from time to time. Provider's work shall be subject to the regulation, control, and direction of the city. All work done in connection with the installation, operation, maintenance, repair, modification, and/or replacement

of the wireless facilities, transport facilities, and related ground equipment shall be in compliance with all applicable city, state, and federal laws, ordinances, codes, rules, and regulations.

G. Primary use. The city shall not grant permits to locate wireless facilities on service poles or other city facilities or equipment that, in the city's sole determination, will adversely impact the primary use of the service pole or other city facility or equipment.

H. Visual clutter. The city may not grant permits to wireless facilities that, in the city's sole determination, will contribute to visual clutter, taking into account the proximity of existing wireless facilities and the surrounding land use. The provider is required to submit a photo simulation of the proposed facilities with the permit application.

I. Wireless facilities and ground equipment shall not impede pedestrian or vehicular traffic or render the public right-of-way non-compliant with applicable codes, including the Americans with Disabilities Act and Texas Accessibility Standards.

(Ord. No. 18717, § 1, 8-22-2017)

15.10.080 Placement preference.

A. General guidelines on placement. In accordance with Chapter 284, a network provider shall construct and maintain network nodes and node support poles in a manner that does not:

1. Obstruct, impede, or hinder the usual travel or public safety on a public right-of-way.

2. Obstruct the legal use of a public right-of-way by other utility providers.

3. Violate nondiscriminatory applicable codes.

4. Violate or conflict with the city's publicly disclosed ordinances regulating the use and occupancy of public rights-of-way or this design manual.

5. Violate the Federal Americans with Disabilities Act of 1990 (42 U.S.C. Section 12101 et seq.).

B. Order of preference. The city's order of preference for installation of network node attachments to existing facilities and new node support poles is as follows:

1. Existing telephone or electric lines between existing utility poles. Micro network nodes shall only be lashed on existing telephone or electrical lines between existing utility poles (electric poles or telephone poles), with notice to the pole owner as required by the Federal Pole Attachment Act, and not placed on utility poles, node support poles, or service poles.

2. Existing utility poles (electric poles or telephone poles) shall be the preferred support facility for network nodes and related ground equipment.

3. Service poles:

a. Non-decorative poles with a height of more than twenty feet, outside of historic district, scenic area, or scenic corridor.

b. Wireless facilities shall not be placed on service poles supporting traffic control devices, traffic signals, or any structure supporting a traffic control device or traffic signal, unless city determines that such installation will not interfere with the integrity of the facility or the safety of the public. Any such installation allowed by the city will be in accordance with a separate agreement with the city.

c. Attachment to service poles used for street signage is discouraged.

4. New node support poles shall be the least preferred type of allowed facility for attachment of network nodes.

5. Ground equipment shall be minimal and the least intrusive design and placement as possible.

(Ord. No. 18717, § 1, 8-22-2017)

15.10.090 Historic landmark and historic district.

A. Areas within the city that have been, or shall be in the future, designated by zoning or other ordinance as historic landmarks or historic districts are also designated as design districts, in which unique design and aesthetic standards are

maintained and enforced by the city. Providers shall comply with and observe all applicable city, state, and federal historic preservation laws and requirements.

B. Providers are discouraged from installing a network node or node support pole within three hundred feet of a historic landmark or within a historic district.

C. Wireless facilities proposed within three hundred feet of a historic landmark or within a historic district shall be subject to review by the city's historic preservation officer in order to satisfy that the installations are compatible with the regulations applicable to the historic landmark or historic district.

1. Subject to Section 105 of Chapter 284, as a condition for approval of permits for network nodes or node support poles in historic districts, the city shall require reasonable design or concealment measures for such facilities. Therefore, with any request for installations in these areas, provider shall include proposed concealment measures in the permit application. Thereafter, provider shall implement the city-approved design concepts, and the use of camouflage or stealth materials as necessary in order to achieve compliance with historic preservation review, including following the design guidelines for the city's historic districts, historic landmarks, and other applicable regulations.

2. Prior to submitting an application for a permit for a wireless facility in a historic district or within three hundred feet of a historic landmark, provider shall meet with the office of historic preservation to discuss any potential design modifications appropriate for the installation.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.100 School zone lights.

Wireless facilities will not be allowed at locations that interfere with school zone flashing lights. The interference to be avoided is structural, radio frequency, and visual.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.110 Sun Metro facilities.

If the permit application is for service poles or other city facilities or equipment or utility poles serving Sun Metro (the city-owned transit system), the permit will not be issued by the city without provider providing documentation that all federal siting permissions have been obtained.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.120 Pedestrian impacts.

A. The city shall not grant permits for wireless facilities that, in the city's sole determination, will adversely impact pedestrian movement or will be in violation of the Americans with Disabilities Act.

B. A minimum of a five-foot path of travel and a six-foot clear path of travel in the downtown plan area will be provided at all times.

C. Network nodes on new or existing poles must be installed at least eight feet above the ground.

D. If the network node attachment is projecting toward the street, it must be installed no less than eight feet above the ground for the safety and protection of the public and vehicular traffic.

E. No protrusion from the outer circumference of the existing structure or pole shall be more than two feet.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.130 Airport proximity.

All permit applications in or within three miles of the landing area of the airport, the boundaries of which are shown on the latest FAA approved airport layout plan on file at the El Paso International Airport, must be approved by the city manager or designee.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.140 Scenic area or scenic corridor.

A. Areas within the city that have been, or are in the future, designated by zoning or other ordinance as scenic areas or scenic corridors, are also designated as design districts in which unique design and aesthetic standards are maintained and enforced by the city.

B. Subject to Section 105 of Chapter 284, all wireless facilities proposed in or within a scenic area or scenic corridor must be camouflaged so as to be unobtrusive and to blend in to the natural surroundings as much as possible.

C. Prior to submitting an application for a permit for a wireless facility in a scenic area or scenic corridor, provider shall meet with the city manager or designee to discuss any potential design modifications appropriate for the installation.

(Ord. No. 18717, § 1, 8-22-2017)

15.10.150 Decorative poles.

A. Subject to Section 105 of Chapter 284, wireless facilities proposed for decorative poles must be camouflaged so as to not adversely affect the appearance of such poles and comply with the design manual.

B. Prior to submitting an application for a wireless facility on a decorative pole, provider shall meet with the city manager or designee to discuss any potential design modifications appropriate for the installation.

(Ord. No. 18717, § 1, 8-22-2017)

15.10.160 Residential areas and municipal parks.

A. Subject to Section 104 of Chapter 284, providers are discouraged from installing a network node on an existing pole in a public right-of-way located in or adjacent to a street or thoroughfare that is:

1. Not more than fifty feet wide, and

2. Adjacent to single-family residential lots or other multifamily residences or undeveloped land that is designated for residential use by the city's zoning ordinance or private deed restrictions.

B. As a general rule, subject to Section 104 of Chapter 284, new node support poles will not be permitted in a public right-of-way that is in a municipal park or that is adjacent to a street or thoroughfare that is described in subsection A., above.

C. The city may, but is not required to, issue a permit for the installation of a network node or node support pole in areas described in this section on terms that are discretionary and nondiscriminatory, and that have the effect of minimizing interference with the aesthetic qualities of such areas, and that are in keeping with the general guidelines of this design manual.

D. If the city approves a permit for the installation of network nodes or node support poles in the areas described in this section, provider remains under an obligation to determine whether any private deed restrictions or other private restrictions are in place in the area, and to comply with same.

(Ord. No. 18717, § 1, 8-22-2017)

15.10.170 Undergrounding requirements.

A. Areas within the city may be designated from time to time by the city as underground utility districts in accordance with filed plats, and/or in connection with the conversion of overhead to underground areas, as may be allowed by law.

B. Provider will comply with nondiscriminatory undergrounding requirements, including municipal ordinances, zoning regulations, state law, private deed restrictions, and other public or private restrictions, that prohibit installing aboveground structures in a public right-of-way without first obtaining zoning or land use approval.

C. In underground utility districts as established by the city, provider shall neither allow nor install transport facilities or any other overhead facilities serving to connect provider's network nodes. In all areas where overhead telecommunications or utility lines are, or are planned to be, buried below ground as part of a city project, all transport facilities or any other wireless facilities serving to connect provider's network nodes, including ground equipment, shall also be buried below ground.

D. If a permitted location subsequently becomes part of an underground utility district, provider's permit will be automatically revoked within

ninety days after such designation, with removal of provider's micro network node, network node, node support pole, and related ground equipment at such location within ninety days of such designation, or as otherwise reasonably allowed by city for the transition of overhead facilities.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.180 Electrical supply.

Provider shall be responsible for obtaining any required electrical power service to the wireless facility. The city shall not be liable to the provider for stoppages or shortages of electrical power furnished to the wireless facility, including, without limitation, stoppages or shortages caused by any act, omission, or requirement of the utility serving the wireless facility or the act or omission of any other tenant or licensee of the city facility, or for any other cause beyond the control of the city. Provider shall not be entitled to any abatement of the rental fee for any such stoppage or shortage of electrical power.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.190 Traffic signals and street signage.

If allowed by city, installations on traffic signals or street signage must not interfere with the integrity of the facility or the safety of the public. Any installation allowed by the city will be in accordance with a separate agreement with the city. Network nodes installed on any traffic signal or street signage structures shall be encased in a conduit separate from the traffic light or street signage elements, have an electric power connection separate from the traffic signal or street signage structure, and have an access point separate from the traffic signal or street signage structure.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.200 Generators.

Generators or back-up generators shall not be installed in the public right-of-way. Permits granted to provider for network nodes or transport facilities do not include authorization for the installation of generators or back-up generators in the public right-of-way.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.210 Ground equipment.

A. In addition to the size restrictions provided in Chapter 284, Section 284.003(a)(4), ground equipment near street corners and intersections should be minimal and the least intrusive. Ground equipment at or near street corner or street intersections must comply with Chapter 12.68 of this Code. This set-back is for the purposes of minimizing any obstruction, impediment, or hindrance to vehicular traffic and public safety, maximizing line-of-sight in order to protect the safety of vehicular and pedestrian traffic at street corners and intersections, and thereby minimizing hazards at those locations.

B. Ground equipment near municipal parks. For the safety of municipal park patrons, particularly small children, and to allow full line-of-sight near municipal park property, the network provider shall not install ground equipment in a public right-of-way that is within a municipal park or within two hundred fifty feet of the boundary line of a municipal park, unless approved by the city in writing.

C. Ground equipment density. In order to enhance the safety requirements of line-of-sight of pedestrians, particularly small children, the city may deny a request for a proposed location for ground equipment where existing ground equipment within three hundred feet of the proposed location, already occupies a footprint of twenty-five square feet, or more.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.220 Equipment dimensions.

With each application and with each request for a permit, and for each requested location, provider shall provide detailed drawings with calculations to show strict conformity to the size

limitations as set forth in Chapter 284 for micro network nodes, network nodes, ground equipment, and maximum pole height.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.230 Non-interference.

A. To the extent not inconsistent with Chapter 284, provider's network nodes shall not cause harmful interference to the city's public service radio frequency, wireless network, or communications operations ("city operations"), or to third-parties' network nodes or similar third-party equipment in the public right-of-way or adjacent city property ("protected equipment"). If provider's network node interferes with city operations, the city shall contact provider's emergency service contact to provide notice of any interference with city operations pursuant to Section 15.10.720. The provider shall immediately cease operation of the network node causing said interference upon receiving notice from the city and refrain from operating until provider has eliminated the interference. If after notice provider continues to operate a network node that causes interference with city operations, such network node may be deemed unauthorized and subject to the remediation and termination provisions of this chapter. If provider's network node interferes with protected equipment, then provider shall take the steps necessary to correct and eliminate such interference within twenty-four hours of receipt of notice from the city. If provider is unable to resolve the interference issue within this timeframe, it will voluntarily power down the network node causing the interference, except for intermittent testing until such time as the interference is remedied.

B. Following installation or modification of a network node, the city may require provider to test the network node's radio frequency and other functions to confirm that it does not interfere with city operations or protected equipment. If, after notice, provider continues to operate a wireless facility that causes interference with city operations, such wireless facility may be deemed unauthorized and subject to the provisions of Article XI of this chapter.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.240 Tree maintenance.

Provider and its contractors and agents shall obtain written permission from the city before trimming trees hanging over its wireless facilities and transport facilities to prevent branches of such trees from contacting same. When directed by the city, provider shall trim under the supervision and direction of the city manager or designee. The city shall not be liable for any damages, injuries, or claims arising from the provider's actions under this section.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.250 Signage.

Provider shall post its name, location identifying information, and emergency telephone number in an area on the wireless facility or ground equipment that is visible to the public. Signage required under this section shall not exceed four inches by six inches, unless otherwise required by law (e.g., RF ground notification signs), or the city. Except as required by law, provider shall not post any other signage or advertising on the pole, the wireless facility, or any ground equipment cabinet or back-up battery.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.260 Repair.

Whenever the installation, placement, attachment, repair, modification, removal, operation, use, or relocation of the wireless facility or transport facility, or any portion thereof is required or permitted under this chapter, and such installation, placement, attachment, repair, modification, removal, operation, use, or relocation causes any service pole, and city facility or equipment, or any portion of the public right-of-way, to be damaged or to have been altered in such a manner as to make it unusable, unsafe, or in violation of any laws, provider, at its sole cost and expense, shall

promptly repair and return such service pole, city facility or equipment, or public right-of-way to its original condition. If provider does not perform such work as described in this paragraph, then the city shall have the option, upon fifteen days' prior written notice to provider or immediately if there is an imminent danger to the public, to perform or cause to be performed such reasonable and necessary work on behalf of provider and to charge provider for the reasonable and actual costs incurred by the city. Provider shall reimburse the city for the costs in accordance with Article XI of this chapter.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.270 Damage to service pole.

Whenever a service pole or other city facility or equipment supporting a network node is damaged or knocked down, city shall provide prompt notice to provider through provider's emergency service contact in Section 15.10.720 of the need to remove or repair provider's network node. Upon receipt of notification from city of such damage, provider shall promptly respond and shall within one hour of such notification take such measures as are necessary to make the area safe, such as disconnection of the power source to the network node and removing damaged equipment from the public right-of-way, if applicable. If the provider does not promptly respond, the city may take sure measures as are necessary to make the area safe.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.280 Access by provider.

Provider's access to public right-of-way shall be coordinated with the city to schedule such access at times that are least disruptive to the traveling public. The time of day and duration of provider's access shall be as determined by city, except for emergency circumstances which shall be coordinated with the city to allow the provider immediate access to the public right-of-way. For all activities that impact traffic, provider's access shall be conditioned upon city approval of provider's traffic control plan. Provider shall maintain written logs of each instance when provider has accessed the public right-of-way; such log shall be made available to city upon reasonable request by city.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.290 Graffiti abatement.

As soon as practical, but not later than seven days from the date provider receives notice thereof, provider shall remove all graffiti on any of its wireless facilities, or ground equipment. The foregoing shall not relieve provider from complying with any city graffiti or visual blight ordinance or regulation.
(Ord. No. 18717, § 1, 8-22-2017)

ARTICLE IV. PRIVATE AND REGULATORY COMPLIANCE

15.10.300 Necessary approvals.

Provider shall be responsible for obtaining from the appropriate public and/or private authority or other appropriate persons any required authorization to construct, operate and/or maintain its wireless facilities or transport facilities on public property before it occupies any portion of the public right-of-way. City retains the right to require evidence that appropriate authorization has been obtained before any permit is issued to provider. Provider's obligations under this article include, but are not limited to, the obligation to obtain all necessary approvals to occupy public/private rights-of-way and to pay all associated costs.
(Ord. No. 18717, § 1, 8-22-2017)

ARTICLE V. PERMIT APPLICATION PROCEDURES

15.10.310 Permit required.

Provider shall not install any wireless facility or transport facility in any portion of the public right-of-way, or materially modify the wireless facility or transport facility, without first applying for and obtaining a permit in compliance with city's permit application process.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.320 License agreement required.

As a precondition to receiving a permit to collocate a network node on a service pole, provider shall enter into a license agreement with the city.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.330 Permit not required.

A. Notwithstanding any other provision of this chapter, a permit is not required for:

1. Routine maintenance that does not require excavation or closing of sidewalks or vehicular lanes in a public right-of-way;

2. Replacing or upgrading a network node or node support pole with a node or pole that is substantially similar in size or smaller and that does not require excavation or closing of sidewalks or vehicular lanes in a public right-of-way; or

3. The installation, placement, maintenance, operation, or replacement of micro network nodes that are strung on cables between existing poles or node support poles, in compliance with the National Electrical Safety Code.

B. For purposes of this section:

1. A network node or node support pole is considered to be "substantially similar" if:

a. The new or upgraded network node, including the antenna or other equipment element, will not be more than ten percent larger than the existing network node, provided that the increase may not result in the network node exceeding the size limitations provided by Chapter 284; and

b. The new or upgraded pole will not be more than ten percent higher than the existing pole, provided that the increase may not result in the pole exceeding the applicable height limitations prescribed by Chapter 284;

2. The replacement or upgrade does not include replacement of an existing node support pole; and

3. The replacement or upgrade does not defeat existing concealment elements of a node support pole.

C. The determination under this section of whether a replacement or upgrade is substantially similar is made by measuring from the dimensions of the network node or node support pole as approved by the city.

D. Notwithstanding the above, for activities that do not require a permit:

1. The provider shall give the city thirty days advance notice of the work described above;

2. A network provider may replace or upgrade a pole only with the approval of the pole's owner; and

3. The size limitations may not in any event exceed the parameters prescribed by Chapter 284 without the city's approval.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.340 Permit application requirements.

A. For each location, provider shall complete and submit to the city an application to locate a wireless facility or transport facility, using the application form provided by the city. The following items shall accompany the completed application form:

1. A one-time, nonrefundable application fee for review of the application in the amount provided in Section 15.10.050.

2. Documents necessary for the review or as requested by the city, including but not limited to:

a. A map showing:

(i) The location of the proposed installation, including GIS or street address information;

(ii) The proximity of the proposed installation to special districts of the city, including but not limited to arts district, historic district, scenic areas and corridors, and airport zoning district;

(iii) The proximity to schools, the El Paso Airport, and municipal parks;

(iv) The proximity to historic landmarks;

(v) The proximity to utility poles, node support poles, and other network nodes on a service pole, if any, and depicting the sidewalks, and ramps onto sidewalks required by applicable codes, TAS,

or other law, including the Americans with Disabilities Act, and paved street surface and utility easements; and

b. Disclosure if the proposed installation is:

(i) In a residential area as described in Section 15.10.160;

(ii) In an underground utility district or other area with undergrounding requirements; and

(iii) On any facilities serving Sun Metro.

c. A pre-permit survey completed by a qualified and experienced professional engineer in accordance with city's requirements, certifying that provider's wireless facilities or transport facilities can be installed on the identified structure in compliance with the applicable codes. The professional engineer's qualifications must include experience performing work for similar attachments on similar facilities.

d. A photo simulation of the proposed facility(ies) along the right-of-way.

e. Detailed plans for each wireless facility, transport facility, and ground equipment, including representative drawings or pictures of the intended network node and other equipment, and proposed dimensions of same. Such plans shall show strict compliance with the city's design manual, with the size limitations set forth in Chapter 284, with maximum pole height limitations set forth in Chapter 284, and with all applicable codes.

f. Certification that the proposed wireless facility complies with applicable regulations of the Federal Communications Commission and that the proposed wireless facility shall not cause any interference with city's public safety radio system, traffic light system, or other city safety communications components.

g. Certification that the proposed network node will be placed into active commercial service by or for a provider not later than the sixtieth day after the date the construction and final testing of the network node is completed.

h. If the proposed location is on a service pole, provider shall have in place an executed license agreement with the city for the use of the service pole.

(i) The permit application will be denied if this license agreement is not in place at the time the application is submitted.

(ii) Representative drawings or pictures of the intended network node as intended to be collocated on the service pole shall be provided.

(iii) Engineering and construction plans and drawings related to the collocation of the network node on the service pole, including where the proposed transport facilities will be connected to the network node as electrical power connections, shall also be provided.

(iv) If the applicant is not the same as the licensee identified in the license agreement, the licensee shall sign the permit application or provide a letter of agency satisfactory to the city. The licensee in such license agreement shall be presumed to be the owner of the network node and ground equipment, and shall be fully responsible for them and the rental fees payable to the city thereunder.

(v) If the requested location has already been approved for collocation by other entities, the application for the service pole shall be denied.

i. If the proposed location lies within a highway right-of-way, the provider must provide evidence of a permit from the state or federal government.

3. City's acceptance of the submitted design documents does not relieve provider and its engineer of full responsibility and liability for any errors and/or omissions in the engineering analysis.

B. The city will review applications for the installation of new node support poles to determine if the proposed location is in an area where a new streetlight is needed. If city determines that a new streetlight is needed at the proposed location, it will notify the provider and request the provider's assistance and cooperation in including the design and construction elements that will enable

the city to attach a streetlight on the node support pole. If provider and city reach agreement on the streetlight attachment, reasonable incremental costs incurred by provider shall be reimbursed by city.

C. The city shall review the permit application for completeness and notify the provider in writing if provider needs to submit additional or missing information. Such written notice will be provided within thirty days after receipt of a permit application for a network node or node support pole, or within ten days for a permit for a transport facility. The notice shall specifically identify the missing information. If provider does not submit the missing or additional information within one hundred eighty days of the notice, the provider's permit application for the requested location shall be deemed withdrawn.

D. The city shall review the permit application to determine if the requested location and proposed installation complies with all applicable codes.

1. If the city denies the permit application, it will notify provider by electronic mail on the date the city denies the permit application, stating the basis for the denial.

2. Provider may cure the deficiencies identified by the city within thirty days by resubmitting the application, along with payment to the city for city's actual costs incurred in reviewing the resubmitted application. Such costs will be identified by city at provider's request.

3. The city's review of the revised application is limited to the deficiencies cited in the denial documentation.

E. The city must approve or deny applications under this title in the following timeframes:

1. An application for a node support pole not later than the one hundred fiftieth day after the date the municipality receives the complete application.

2. An application for a network node not later than the sixtieth day after the date the municipality receives the complete application.

3. An application for a transport facility not later than the twenty-first day after the date the municipality receives a complete application.

4. An application for a permit for a node support pole, network node, or transport facility shall be deemed approved if the application is not approved or denied on or before the applicable date for approval or denial prescribed in this subsection.

F. The city shall approve or deny the revised completed application after denial not later than ninety days after the date the city receives the completed revised application.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.350 Termination of permits.

A. Unless the city grants an extension of time upon provider's request, a permit shall expire six months after approval by the city if installation pursuant to the permit has not begun by that date.

B. Any permit shall automatically terminate when provider ceases to have authority to construct and operate its wireless facilities or transport facilities on public right-of-way at the location covered by the permit. Provider shall, at its sole expense, remove the wireless facility or transport facility from the public right-of-way within thirty days. If provider fails to remove the wireless facility or transport facility within thirty days, city shall have the right to remove the facilities at provider's expense.

C. Any permit shall automatically terminate for a wireless facility or transport facility that becomes nonfunctional and no longer fit for service ("nonfunctional attachment"). Provider shall, at its sole expense, remove any nonfunctional attachment, or part of a nonfunctional attachment, within thirty days of the wireless facility or transport facility becoming nonfunctional. If provider fails to remove a nonfunctional attachment within thirty days, city shall have the right to remove the nonfunctional attachment at provider's expense.

D. Provider may at any time surrender any permit. Provider shall, at its sole expense, remove the wireless facility, transport facility, and related

ground equipment from the public right-of-way within thirty days of provider's notice of surrender of a permit. If provider fails to remove the wireless facility, transport facility, or related ground equipment, or any part thereof from the public right-of-way within thirty days, city shall have the right to remove same at provider's expense.
(Ord. No. 18717, § 1, 8-22-2017)

ARTICLE VI. REMOVAL OF WIRELESS FACILITIES AND GROUND EQUIPMENT

15.10.360 Removal upon notice from city for city project.

A. The city may determine that it is necessary for provider to remove or relocate its micro network node, network node, node support pole, transport facilities, and related ground equipment, or any portion thereof, from the public right-of-way or a service pole for city projects. Whenever the city reasonably determines that relocation or removal is needed for the construction, completion, repair, widening, relocation, or maintenance of, or use in connection with, any city construction or maintenance project of a street or public right-of-way, or service pole, provider shall remove or relocate its facilities at its sole cost and expense, except as otherwise provided in existing state or federal law.

B. Provider shall complete the removal or relocation within thirty days after receiving written notice from city, provided city or a third party has not prevented provider from completing such work. Provider shall notify city in writing within ten days after the removal or relocation has been completed.

C. If provider fails to remove or relocate the micro network node, network node, node support pole or related ground equipment, or portion thereof as requested by the city within thirty days after receiving written notice from city, city shall have the right to remove, or to have removed, the micro network node, network node, node support pole or related ground equipment, or portion thereof, at provider's expense.

D. City shall not be responsible or liable for damage to provider's wireless facilities, transport facilities, or related ground equipment except to the extent provided in this chapter.

E. Network provider shall reimburse city for the city's actual cost of removal of wireless facilities, transport facilities, and related ground equipment within thirty days of receiving the invoice from the city.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.370 Removal required by city for safety and imminent danger reasons.

A. Network provider shall, at its sole cost and expense, promptly disconnect, remove, or relocate the applicable wireless facility, transport facility, and related ground equipment within the time frame and in the manner required by the city if the city reasonably determines that the disconnection, removal, or relocation of any part of a wireless facility, transport facility, or related ground equipment:

1. Is necessary to protect the public health, safety, welfare, or public property;

2. If such wireless facility, transport facility, or related ground equipment, or portion thereof, is adversely affecting proper operation of service poles or other city facilities or equipment; or

3. If provider fails to obtain all applicable licenses, permits, and certifications required by law for its wireless facilities, transport facilities, and related ground equipment, or for the use of any location under applicable codes, except to the extent not consistent with Chapter 284.

B. If the city reasonably determines that there is imminent danger to the public, then the city may, after attempting to contact provider's emergency service contact under Section 15.10.720, immediately disconnect, remove, or relocate the applicable wireless facilities, transport facilities, or related ground equipment at the provider's sole cost and expense in strict accordance with the city's ordinances, except to the extent not consistent with Chapter 284.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.380 Repair by provider.

Provider shall repair any damage to any service pole, public right-of-way, city facility or equipment, and the property of any third party resulting from provider's removal or relocation activities (or any other of provider's activities hereunder) within ten days following the date of such removal or relocation, at provider's sole cost and expense, including restoration of the service pole or other city facility or equipment and any portion of the public right-of-way to substantially the same condition as it was immediately before the date provider was granted a permit, including restoration or replacement of any damaged trees, shrubs, or other vegetation. Such repair, restoration and replacement shall be subject to the sole, reasonable approval of the city.
(Ord. No. 18717, § 1, 8-22-2017)

ARTICLE VII. ABANDONMENT OR REMOVAL

15.10.390 Abandonment by city.

A. If city desires at any time to abandon or remove any service pole or other city facility or equipment to which provider's wireless facilities or transport facilities are attached, city shall give provider notice in writing at least sixty days prior to the date on which city intends to abandon or remove such service pole or other city facility or equipment. If, following the expiration of the sixty-day period, provider has not removed all of provider's wireless facilities or transport facilities, shall have the right to remove same at provider's expense.

B. If any service pole or other city facility or equipment must be removed by reason of any federal, state, county, municipal or other governmental requirement, including, but not limited, to underground conversion, or the requirement of a property owner, provider shall remove its wireless facilities or transport facilities from the affected location, at provider's expense, within sixty days of receipt of written notice from city. If provider does not remove its wireless facilities or transport facilities within the sixty-day period, city shall have the right to remove same at provider's expense.

C. Unless requested by city, provider shall not abandon in place any wireless facilities, transport facilities, or related ground equipment, or any portion thereof. Any wireless facility abandoned in place at city's request shall become the property of city, and provider will provide appropriate documentation to the city as evidence of the abandonment in favor of the city.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.400 Removal by provider.

If provider removes or relocates a wireless facility, transport facility, or ground equipment at its own discretion, it shall notify the city engineer in writing not less than ten business days prior to removal or relocation. Provider shall obtain all permits required for relocation or removal of its wireless facilities, transport facilities, or ground equipment prior to relocation or removal. In the event a streetlight has been installed on a node support pole, as provided in Section 15.10.340.B. above, provider will not remove or relocate the node support pole without the city's permission.
(Ord. No. 18717, § 1, 8-22-2017)

ARTICLE VIII. INSPECTION OF FACILITIES

15.10.410 Right to inspect.

City reserves the right to inspect wireless facilities, transport facilities, and related ground equipment at any time. The city may perform visual inspections of any wireless facilities located in the public right-of-way as the city deems appropriate without notice. If the inspection requires physical contact with any wireless facilities, the city shall provide written notice to the provider within five business days of the planned inspection. Provider may have a representative present during such inspection. Provider shall reimburse city for the actual cost of an inspection of each individual

wireless facility or ground equipment for each inspection that reveals that provider is in violation of the provisions of this chapter or its permit.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.420 Failure to inspect.

City's inspections, or the failure to do so, shall not operate to impose upon city any liability of any kind whatsoever or relieve provider of any responsibility, obligations or liability for provider's wireless facilities, transport facilities, or related ground equipment, whether assumed under provider's permit or otherwise existing.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.430 Written notice.

City shall provide written notice to provider if an inspection reveals that all, or any part, of provider's wireless facilities, transport facilities, or related ground equipment are installed, used, or maintained in violation of this chapter or provider's permit. Provider agrees to bring its wireless facilities, transport facilities, and related ground equipment into full compliance with this chapter and its permit within thirty days of receipt of notice from city. If provider does not correct the violation(s) within thirty days as required, city may correct the conditions at provider's expense. When city reasonably believes that the violation(s) poses an immediate threat to the safety of any person, interferes with the performance of city's obligations, or poses an immediate threat to the physical integrity of service poles or other city facilities or the public right-of-way, city may perform work and/or take action as reasonably necessary to eliminate such immediate threat without first giving written notice to provider. City will advise provider in writing of the work performed or the action taken, including photographic evidence substantiating the violation and its cause. Provider shall pay city for all costs city incurs in performing the work or taking the action.
(Ord. No. 18717, § 1, 8-22-2017)

ARTICLE IX. UNAUTHORIZED OCCUPANCY OR ACCESS

15.10.440 Notification.

If any of provider's wireless facilities, transport facilities, or related ground equipment are found occupying any portion of the public right-of-way for which no permit has been issued and is in effect, city, without prejudice to its other rights or remedies, shall notify provider of such finding. It will be presumed, subject to provider providing reasonable evidence otherwise, that such non-permitted facilities have been in place for six months. In such case, provider shall pay the city for six months of the appropriate fee, as provided in Section 15.10.050. At city's discretion, city may require the immediate removal of the unpermitted facilities and equipment. However, the applicable fees shall continue to accrue, and provider shall remain responsible for payment of same, until the unpermitted facilities and equipment are removed.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.450 Premature attachment.

If provider attaches wireless facilities, transport facilities, or ground equipment after submittal of a permit application but prior to city's final determination on the permit, such premature attachment shall be deemed to be unauthorized. The appropriate fees will immediately become due to the city. If the city determines to deny the permit application for such premature attachment, the premature attachments shall be removed; however, the applicable fees shall continue to accrue, and provider shall remain responsible for payment of same, until the unpermitted facilities and equipment are removed.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.460 Responsibility for unauthorized occupancy or access.

No act or failure to act by city with regard to unauthorized occupancy or access shall be deemed as ratification of the unauthorized occupancy or access. If any permit should be subsequently is-

sued, said permit shall not operate retroactively or constitute a waiver by city of any of its rights or remedies. Provider shall be subject to all liabilities, obligations and responsibilities for the unauthorized occupancy or access from inception.
(Ord. No. 18717, § 1, 8-22-2017)

ARTICLE X. LIABILITY AND INDEMNIFICATION

15.10.470 City's access to public rights-of-way.

City reserves the right to maintain and operate public rights-of-way in the manner it deems best. Provider agrees to use public rights-of-way at provider's sole risk except for inconvenience, annoyance, or injury to provider's wireless facilities caused by the city's negligence or willful misconduct. City shall exercise reasonable care to avoid damaging provider's wireless facilities and city shall report to provider the occurrence of any such damage caused by city's employees, agents or contractors.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.480 Indemnification.

Provider shall indemnify city as provided in Chapter 283, Section 283.057(A) and (B), Texas Local Government Code; except, however, where a claim or damage results from the negligence or willful misconduct of the city.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.490 Waiver of liability.

No provision of this agreement is intended, or shall be construed, to be a waiver for any purpose by city of governmental immunity or other provisions of Texas law limiting municipal liability. No indemnification provision contained in this chapter under which provider indemnifies city shall be construed in any way to limit any other indemnification provision contained in this chapter or Texas law.
(Ord. No. 18717, § 1, 8-22-2017)

ARTICLE XI. DUTIES AND RESPONSIBILITIES

15.10.500 Condition of public rights-of-way.

City does not warrant the condition or safety of public rights-of-way or service poles. Any provider issued a permit to occupy public rights-of-way or service poles has an obligation to inspect public rights-of-way or service poles, prior to commencing any work. By accepting a permit from the city for occupancy of public right-of-way, provider assumes all risks of any damage, injury, or loss of any nature whatsoever caused by or in connection with the use of public rights-of-way.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.510 Facilities, difficulties, and restrictions of work.

By accepting a permit, provider warrants that it has acquainted, or will fully acquaint, itself and its employees and/or contractors and agents with the conditions relating to the work that provider will undertake under the permit and that it fully understands or will acquaint itself with the facilities, difficulties, and restrictions attending the execution of such work.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.520 Warranties.

City makes no express or implied warranties with regard to public rights-of-way, service poles, or other city facilities or equipment, all of which warranties are hereby disclaimed. City expressly disclaims all other warranties, express or implied including, but not limited to, implied warranties of merchantability or fitness for a particular purpose.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.530 Interruption of service.

In the event that provider shall cause an interruption of service by damaging or interfering with any equipment of city, provider at its expense shall immediately do all things reasonable to avoid injury or damages, direct and incidental, resulting

from the interruption and shall notify city immediately. To the extent permitted by Texas law, provider shall be liable for all direct costs resulting from such damage and any necessary repairs.
(Ord. No. 18717, § 1, 8-22-2017)

ARTICLE XII. SECURITY

15.10.540 Security required.

Within thirty days of the approval of provider's initial permit under this chapter, provider shall maintain and furnish to the city a security in favor of the city. "Security" means an executed performance bond acceptable to the city, for the purpose of protecting the city from the costs and expenses associated with provider's failure to comply with its material obligations under and throughout the time of provider's occupancy of public right-of-way, including but not limited to:

1. The city's restoration of the public right-of-way;

2. The city's removal of any of provider's attachments that are abandoned or not properly maintained or that need to be removed to protect public health, safety, welfare, or city property;

3. The city's recoupment of rental fees that have not been paid by provider in over twelve months, after provider receives reasonable notice from the city of any of the non-compliance listed above and opportunity to cure.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.550 Amount of security.

The amount of security shall be at least twenty-five thousand dollars for each multiple of five attachments. The security amount shall be prorated based on the number of attachments.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.560 Form of bond.

The bond, if any, must be in a form approved by the city attorney and issued by a corporate surety authorized and admitted to write surety bonds in Texas. The surety must be listed on the current list of accepted sureties on federal bonds published by the United States Treasury Department or reinsured for any liability up to one hundred thousand dollars by a reinsurer listed on the U.S. Treasury list.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.570 Security not renewed.

In the event the surety or party issuing the security cancels or decides not to renew or extend the security, provider shall obtain, and provide to the city attorney for approval, a replacement security with another surety, authorized to do business in Texas, within thirty days of the date the security has been cancelled or non-renewed. If provider fails to provide the replacement security within the thirty-day period, the city may immediately suspend licensee from any further performance under this agreement and begin procedures to terminate for default pursuant to the terms of Article XVI.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.580 Replenish security.

In the event the city draws upon the security, provider must replenish the amount of the security within thirty days. The city will notify provider in writing as a precondition to drawing on, seeking payment under, or executing against the security.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.590 Return of security.

In the event that provider shall relinquish its permits and remove its attachments from city facilities or public right-of-way, the city shall return the security to provider, or a portion thereof, within sixty days of the removal of the attachments.
(Ord. No. 18717, § 1, 8-22-2017)

ARTICLE XIII. INSURANCE

15.10.600 Insurance required.

At all times during provider's use and occupancy of city facilities or public right-of-way, provider shall keep in force and effect the same insur-

ance coverage as required for certificated telecommunications providers, as set forth in Section 15.08.130.D., City Code.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.610 Certificate of insurance.

Prior to the effective date of any permit issued hereunder, and upon renewal of each insurance policy during the time of provider's occupancy of the public right-of-way, provider will furnish city with a certificate of insurance evidencing the insurance coverage required by this chapter.
(Ord. No. 18717, § 1, 8-22-2017)

ARTICLE XIV. NON-ASSIGNMENTS OF RIGHTS

15.10.620 Transfer of the rights and obligations of permit.

Permits granted to provider may not be assigned, transferred, sold, or disposed of by provider without the prior written consent of city. Notwithstanding the foregoing, the transfer of the rights and obligations of provider to an affiliate or to any entity that acquires all or substantially all of provider's assets in the market defined by the Federal Communications Commission in which city is located by reason of a merger, acquisition, or other business reorganization ("exempted transfers") shall not require the consent of city.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.630 Obligations of provider.

No assignment or transfer, including exempted transfers, shall be allowed unless and until the assignee or transferee assumes all obligations of provider arising under the permit. Notwithstanding any assignment or transfer, provider shall remain fully liable under its permit and shall not be released from performing any of the terms, covenants or conditions of the permit or this chapter without the written consent to the release of provider by city.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.640 Lease of rights under a permit prohibited.

Provider shall not lease its rights under a permit to an unaffiliated third party, including but not limited to allowing third parties to place wireless facilities, transport facilities, or ground equipment on public right-of-way, or by placing wireless facilities on service poles or other city facilities for the benefit of such third parties, without city's prior written consent. Any such action shall constitute a material violation of this chapter.
(Ord. No. 18717, § 1, 8-22-2017)

ARTICLE XV. FAILURE TO ENFORCE

15.10.650 Failure to enforce.

Failure of city to take action to enforce compliance with any of the terms or conditions of a permit or this chapter, or to give notice, or to declare a permit terminated, shall not constitute a waiver or relinquishment of any term or condition of the permit or this chapter.
(Ord. No. 18717, § 1, 8-22-2017)

ARTICLE XVI. TERMINATION OF PERMITS

15.10.660 Failure to comply with terms.

Provider shall be in default of its permit(s) when provider fails to comply with any term or condition of this chapter or its permit(s), including but not limited to the following circumstances:

1. Construction, operation or maintenance of provider's wireless facilities in violation of law or in aid of any unlawful act or undertaking; or

2. Construction, operation or maintenance of provider's wireless facilities after any authorization required of provider has lawfully been denied or revoked by any governmental or private authority; or

3. Construction, operation or maintenance of provider's wireless facilities without the required insurance coverage; or

4. Provider's wireless facilities, transport facilities, or ground equipment are found occupying any portion of any of public right-of-way for which no permit has been issued and is in effect; or

5. Failure of provider to timely cure a violation of any applicable standard or provision of this chapter; or

6. Nonpayment of any undisputed amount due under this chapter.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.670 Notification of default condition(s).

City will notify provider in writing of any default condition(s) pursuant to Section 15.10.660 above. Provider shall take immediate corrective action to eliminate any such condition(s) within thirty days of receipt of notice and shall confirm in writing to city when the noticed condition(s) has ceased or been corrected. If the nature of the violation is such that it cannot be fully cured within thirty days due to circumstances not under provider's control, the period of time in which provider must cure the violation will be extended for such additional time reasonably necessary to complete the cure, provided that: (1) provider has promptly begun to cure; and (2) provider is diligently pursuing its efforts to cure. If provider fails to discontinue or correct such condition(s) and/or fails to give the required confirmation within the foregoing time periods, city may take any remedy available under the law, including immediately terminating any permit.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.680 Requirements at termination of a permit.

Upon termination of a permit pursuant to this article, provider shall remove the affected wireless facilities, transport facilities, or ground equipment within sixty days after termination, at provider's sole expense, and shall surrender the public right-of-way to city in the same condition it was in on the date the permit was granted for same, excepting ordinary wear and tear. If provider fails to remove the equipment within sixty days of termination of the permit, city shall have the right to remove the equipment at provider's expense.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.690 Provider liable for fees and charges.

Provider shall be liable for and pay all fees and charges pursuant to this chapter to city until provider's wireless facilities, transport facilities, or ground equipment are actually removed.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.700 Provider's responsibility and obligations at termination.

After the termination of all permits, provider's responsibility and indemnity obligations shall continue with respect to any claims or demands related to provider's wireless facilities, transport facilities, or ground equipment attachments as provided for in this chapter or applicable law.
(Ord. No. 18717, § 1, 8-22-2017)

15.10.710 Effect of Chapter 284 of the Local Government Code.

If Chapter 284 of the Local Government Code, or any part thereof is at any time, in full or in part, revoked, found to be unconstitutional, struck down, preempted or otherwise becomes void or invalid, then permits granted under this chapter shall automatically terminate, unless an extension is granted by the city. This section shall constitute notice that in such case, all network nodes are to be removed within ninety days from the event that affects Chapter 284. The parties agree they will negotiate in good faith to assure an ease of transitions as to those parts of Chapter 284 that have been adjudicated as unenforceable, as well as continued compliance with those parts that may remain enforceable, if any.
(Ord. No. 18717, § 1, 8-22-2017)

ARTICLE XVII. EMERGENCY CONTACT

15.10.720 Emergency contact.

Provider shall maintain a staffed twenty-four-hour emergency telephone number, not available to the general public, where city can contact provider to report damage to provider's wireless facilities, transport facilities, or ground equipment or other situations requiring immediate communica-

tions between the parties. Such contact person shall be qualified and able to respond to city's concerns and requests. Failure to maintain an emergency contact as required shall subject provider to a penalty of one hundred dollars per incident, and shall eliminate city's liability to provider for any actions that city deems reasonably necessary given the specific circumstances.
(Ord. No. 18717, § 1, 8-22-2017)

Chapter 15.12

WATER AND SEWER SYSTEM

Sections:

15.12.005 Definitions.

15.12.010 Rules and regulations.

15.12.015 Franchise fee.

15.12.020 Unauthorized interference with mains.

15.12.030 Storm drain work—Permit required.

15.12.040 Storm drain construction—Permit required.

15.12.050 Storm drain work or construction permit—Application—Contents—Fee—Issuance.

15.12.055 Discharge to storm sewer system from treatment of petroleum fuel contaminated waters.

15.12.060 Ordering removal or alteration of unauthorized work.

15.12.070 Water contamination in vicinity of water treatment plant.

15.12.075 Permitting flow of water onto public rights-of-way unlawful.

15.12.120 Penalty.

15.12.120-1 Civil penalty.

15.12.120-2 Enforcement by public service board.

15.12.130 Issuance of citations.

15.12.005 Definitions.

For the purpose of this chapter, and Chapter 15.13, the following definitions apply:

A. "Produced water" means any water that is supplied by a public or private water system or that is pumped from the ground or diverted from the flows of the Rio Grande.

B. "Public right-of-way" means a paved or unpaved street, alley or other public easement, including the sidewalk, parkway, curb, gutter or ditch of any street, alley or other public easement.

C. "Responsible party" means the owner, manager, supervisor, person whose name is on the water bill, person whose signature is on the water service contract, person who receives the water bill, or person in charge of the property, facility or operation during the period of time the violation is observed.

D. "Water flowing" from a property means and includes:

1. Water applied for irrigation of landscaping when the application of the water or the device used for applying the water is such that allows a portion of the water to leave the property and enter a public right-of-way;

2. When water used for washing of hard surfaces, vehicles or other objects is used in such a manner that all or a portion of the water so used flows from the property into such public right-of-way; and

3. When water is used on a property for any other purpose in such a manner that a portion or all of the water leaves the property and enters a public right-of-way.

E. "Public service board rules and regulations" means rules and regulations promulgated by the public service board pursuant to Section 15.12.010, a certified copy of which shall be authenticated by the signature of the mayor and the city clerk and made a public record by resolution of city council and on file in the city clerk's office as provided for in Section 3.13 of the city charter.

F. "Shut-off nozzle" means a device attached to the end of a hose that completely shuts off the flow of water, even if left unattended.

G. "Fugitive water" means the pumping, flow, release, escape or leakage of any water from any pipe, valve, faucet, connection, diversion, well or any facility for the purposes of water supply, transport, storage, disposal or delivery onto adjacent property or the public right-of-way.

H. "Turf grass" means a surface of earth containing mowed grass with its roots. Examples are: Annual bluegrass, Kentucky bluegrass, Perennial rye grass, Red fescue, and Tall fescue are cool-season grasses. Common Bermuda grass, Ber-

muda Hybrids, St. Augustine grass, Zoysia grass and Buffalo grass warm-season grasses. (Ord. 14805 (part), 2001: Ord. 10240 § 1, 1990; Ord. 8391 (part), 1985: prior code § 23-32)

15.12.010 Rules and regulations.

The public service board is authorized to promulgate rules and regulations on all subjects relevant to the operation of the city's water and sewer systems, which rules and regulations shall have like effect as if adopted by ordinance. (Ord. 14805 (part), 2001: prior code § 23-1)

15.12.015 Franchise fee.

The recitals described in Ordinance No. 019011 are found to be true and correct legislative and factual findings of the city council, and are hereby approved and incorporated into this ordinance by reference.

The City of El Paso grants the El Paso Water Utilities Public Service Board (PSB) a franchise to use the city streets as necessary to manage and operate the water and sewer system. The city establishes a franchise fee ("PSB infrastructure franchise fee") to be paid by the PSB in the amount of up to six million five hundred fifty thousand dollars. The PSB will pay the city the PSB infrastructure franchise fee on a monthly basis.
(Ord. No. 19011, § 1, 12-17-2019)

15.12.020 Unauthorized interference with mains.

Any person, except an employee or agent of the department of water and sewerage of the city, who shall cut, damage or make any connection with any city water main or sewer main shall be deemed guilty of a misdemeanor and punished as provided in Sections 1.08.010 through 1.08.030. (Ord. 14805 (part), 2001: prior code § 23-2)

15.12.030 Storm drain work—Permit required.

No person shall fill, improve or create any obstruction to, or interference with, any ditch or natural drainage channel that will in any manner obstruct the flow of water or change the direction, volume or force of water discharged through such ditch or drainage channel carrying stormwater, except upon the issuance of a permit from the city engineer or other designee of the city manager. (Ord. 14805 (part), 2001: Ord. 13152 § 125, 1997: prior code § 23-3)
(Ord. No. 17393, § 7, 8-24-2010, eff. 9-1-2010; Ord. No. 17808, § 8, 6-5-2012, eff. 6-11-2012)

15.12.040 Storm drain construction—Permit required.

No person shall construct, reconstruct, alter, repair or install any drainage structure in any ditch or natural drainage channel carrying stormwaters except on the issuance of a permit by the city engineer or other designee of the cuty manager. (Ord. 14805 (part), 2001: prior code § 23-4)
(Ord. No. 17393, § 7, 8-24-2010, eff. 9-1-2010; Ord. No. 17808, § 8, 6-5-2012, eff. 6-11-2012)

15.12.050 Storm drain work or construction permit—Application—Contents—Fee—Issuance.

A. Any person desiring to obtain a permit required under Sections 15.12.030 or 15.12.040 shall file with the city engineer or other designee of the city manager a written application containing the following information:

1. The name and address of the applicant;

2. The place where such construction, reconstruction, repair, alteration or installation of a structure is to take place; or where a drainage course is to be obstructed, filled, improved or changed;

3. The type of construction and materials to be used in such construction, reconstruction, repair, alteration or installation of the proposed drainage structure, or the manner in which the drainage channel or ditch is to be filled, obstructed or improved;

4. A plan of the proposed work prepared by a professional engineer registered in the state;

5. A verification number confirming that the applicant has contacted a "one call" notification system servicing the area as required by this chapter. Applicant shall pay a filing fee of twenty dollars, which is assessed to pay part of the cost of enforcing Sections 15.12.030 through 15.12.060.

B. If the city engineer or other designee of the city manager finds that the proposed structure, fill, obstruction, alteration or improvement will not interfere with the natural flow of stormwaters so as to damage other property, and will not create or increase any hazard thereto, he shall issue a permit to do the proposed work in the manner specified in the application and plan, or amendments thereto which he may require in the interest of safety; otherwise he shall refuse the permit. A permit may be denied for the failure of the applicant to contact a "one call" notification system servicing the area and to provide a verification number confirming that such a "one call" notification system has been contacted by the applicant. This requirement however, shall create no duty, express or implied, on the part of the city to verify that such a "one call" has been made by the applicant. (Ord. 15654 § 1, 2004; Ord. 14805 (part), 2001: Ord. 13152 § 126, 1997; Ord. 11708 § 1, 1993: prior code § 23-5)
(Ord. No. 17393, § 7, 8-24-2010, eff. 9-1-2010; Ord. No. 17808, § 8, 6-5-2012, eff. 6-11-2012)

15.12.055 Discharge to storm sewer system from treatment of petroleum fuel contaminated waters.

A. Permit required. Where discharge of petroleum-contaminated water to the city storm sewer system is proposed, a petroleum-contaminated water discharge permit (discharge permit) shall be required. A petroleum-contaminated water discharge permit shall be required for each discharge location. If additional discharges are requested for the same location subsequent to a permit having been issued, a new discharge permit application shall be required.

B. Period of validity of permit. A discharge permit issued under the provisions of this section shall expire within twelve months of the date of issuance of the permit. Two twelve-month extensions for completion of the work may be granted by the city engineer or other designee of the city manager, provided that a written request for extension is submitted no later than thirty days before the expiration of the permit. The permit shall become void and a new permit application shall be required after expiration of the permit or permit extension.

C. Permit fee.

1. A petroleum-contaminated water discharge permit application shall be accompanied by a one hundred twenty-five dollar application fee. Such fee shall be to defray the costs of processing such applications and shall be nonrefundable. The application fee shall be paid to the city cashier through the city engineering department.

2. If any person discharges petroleum-fuel contaminated waters into the city storm sewer system without first having obtained a discharge permit, a discharge permit shall be required subject to a late application fee of two thousand seventy-five dollars. In cases where an emergency is declared by a competent authority, and where the city is properly notified through the emergency 911 system or through a facsimile to the city engineer or other designee of the city manager, a late application fee shall not be assessed for work commenced prior to issuance of a discharge permit.

D. Permit contents. The discharge permit application shall be submitted to the city engineer and shall include the following information:

1. A copy of the discharge approval by the Texas Commission on Environmental Quality;

2. A site map of the proposed discharge location;

3. A narrative to include the following:

a. Description of the need for the discharge,

b. Rate of discharge in cubic feet per second, and

c. Duration of discharge;

4. A detailed construction plan to include splash pads;

5. Effluence limitations and water analysis, to include the minimum monitoring requirements as specified in Title 31 Texas Administrative Code Section 321.135. The applicant shall be required to provide copies of the discharge permit application and accompanying information to the director of the department of environmental services.

E. Permit issuance.

1. Upon verification by the applicant that the above-described information has been provided to the director of the department of environmental services, the application shall be accepted for processing.

2. When the discharge requires construction, it shall be the responsibility of the applicant to obtain clearance from all affected utility agencies prior to start of construction. When construction is to be within public right-of-way, the applicant shall meet the insurance requirements of Section 13.16.010 and the bond requirements of Section 13.08.030 of this code.

F. Exception to permit requirement. A petroleum-contaminated water discharge permit shall not be required where discharges of petroleum-contaminated water into the city storm sewer system is associated with a city public works project under the direction of the director of public works. Provided, however, that all other requirements of this section and of other city, state and federal regulations shall be observed, expressly including the notification procedures to the Texas Commission on Environmental Quality and the city-county health district. (Ord. 16822 §§ 1 (part), 2, 2008; Ord. 15657, 2004; Ord. 14805 (part), 2001: Ord. 13152 § 127, 1997; Ord. 11144 § 1, 1992) (Ord. No. 17393, § 8, 8-24-2010, eff. 9-1-2010; Ord. No. 17808, § 9, 6-5-2012, eff. 6-11-2012)

15.12.060 Ordering removal or alteration of unauthorized work.

If any work for which a permit is required under Sections 15.12.030, 15.12.040 and 15.12.050 is done without such permit, and is of such design or nature that a permit would have been refused under Section 15.12.050, the city council may, after five days' notice to the owner and opportunity to be heard, order such work removed, or so altered as to avoid damage or hazard to other property. The city council shall fix a reasonable time for compliance with such order and give the owner written notice thereof. (Ord. 14805 (part), 2001: prior code § 23-6)

15.12.070 Water contamination in vicinity of water treatment plant.

Within the area between a line directly across the irrigation canal and the Rio Grande at the downstream end of the intakes into the city water treatment plant and a line directly across the canal and the river one-half mile upstream therefrom, no person shall:

A. Bathe, swim or wade in the river or canal; or

B. Throw or place in the river or the canal any waste or refuse, or any substance or thing which may contaminate the water; or

C. Throw or place such waste, refuse, substance or thing within one hundred fifty feet of the banks of the canal or within one hundred fifty feet of the normal high water mark of the river; or

D. Keep or bring any animal within such distance from the banks of the canal or the normal high water mark of the river (except animals passing over a public road or in transit on any railroad), or wash or clean within such distance thereof any vehicle which has been used for the transportation of any animal. (Ord. 14805 (part), 2001: prior code § 23-7)

15.12.075 Permitting flow of water onto public rights-of-way unlawful.

It is unlawful for any party responsible for any property within the corporate limits of the city to permit or cause water to flow, spray or otherwise move or be discharged from the premises of such responsible party to or upon any street, alley, gutter or ditch, or other public right-of-way, or into a stormwater drainage system or facility. (Ord. 14805 (part), 2001: Ord. 8391 (part), 1985: prior code § 23-31)

15.12.120 Penalty.

Any person violating any provisions of this chapter or any provision of the public service board rules and regulations shall be deemed guilty of a misdemeanor and upon conviction thereof shall be punished by a fine not to exceed two thousand dollars per violation, and if such violation is a continuous one, each day's violation shall constitute a separate offense. In addition to any penalty provided for in this section, this chapter and the public service board rules and regulations are enforceable by injunction or any other legally available means. (Ord. 14805 (part), 2001: Ord. 10240 § 2, 1990: Ord. 9975 § 1, 1990: Ord. 8391 (part), 1985: prior code § 23-34)

15.12.120-1 Civil penalty.

Any person who violates any provision of the public service board rules and regulations shall be subject to a civil penalty up to a maximum of two thousand dollars per violation. Provided, however, if a different penalty is specifically provided for, such penalty shall apply. Any person who violates a provision of public service board rules and regulations the relating to point source effluent limitations or the discharge of a pollutant, other than from a nonpoint source, into a sewer system, including a sanitary or stormwater sewer system, owned or controlled by the city, shall be subject to a civil penalty up to a maximum of five thousand dollars per violation. If the violation is a continuous one, each day's violation shall constitute a separate offense. (Ord. 14805 (part), 2001: Ord. 11531 § 1, 1993: Ord. 10240 § 3, 1990)

15.12.120-2 Enforcement by public service board.

Whenever it appears there is a violation of any of the public service board rules and regulations, the public service board may institute suit, through its own attorney, for the recovery of civil penalties, as provided for in this chapter, or injunctive relief, or the public service board may pursue any other legally available remedy or any combination of the foregoing. (Ord. 14805 (part), 2001: Ord. 10240 § 4, 1990)

15.12.130 Issuance of citations.

Any water and sewerage inspector or any other personnel authorized to issue class C misdemeanor citations is authorized to issue citations for violations of this chapter. (Ord. 14805 (part), 2001: Ord. 13152 § 128, 1997: Ord. 9975 § 2, 1990: Ord. 8429, 1985: prior code § 23-35)

Chapter 15.13

WATER CONSERVATION

Sections:

15.13.005 Definitions.

15.13.010 Water conservation compliance.

15.13.020 Mandatory compliance—Lawn and landscape watering.

15.13.030 Nonessential water use restrictions.

15.13.040 Declaring of nuisance of exist.

15.13.050 Large and very large users.

15.13.060 Variances and permits.

15.13.070 Appeal to public service board and city council.

15.13.080 Penalty.

15.13.090 Other enforcement action.

15.13.100 Exceptions to enforcement.

15.13.110 Issuance of citations.

15.13.120 Water emergency—Restriction of water use.

15.13.130 Turf grass prohibited.

15.13.140 Drought and water emergency management response plan.

15.13.005 Definitions.

All definitions contained in Section 15.12.005, Definitions, of Chapter 15.12 "Water and Sewer System" are incorporated into this chapter by reference. (Ord. 14805 (part), 2001)

15.13.010 Water conservation compliance.

No person who uses water from the city water supply system, the management and control of which the city council delegated to the El Paso water utilities public service board (public service board) by Ordinance No. 752, shall make, cause, use or permit the use of water received from the public service board for residential, commercial, industrial, agricultural, governmental or any other purposes in a manner contrary to any provisions of this chapter. Provided further, that no person shall make, cause, use or permit the use of water in a manner contrary to Section 15.12.075 of the city code or Section 15.13.040 of this chapter, regardless of whether that water is received from the El Paso water utilities public service board. When used in this chapter, the terms "commercial," "industrial," and "residential" shall have the meaning and usage consistent with the usage of those terms under Title 20, Zoning, of the city code. (Ord. 14805 (part), 2001: Ord. 10503 § 2 (part), 1991)

15.13.020 Mandatory compliance—Lawn and landscape watering.

The following mandatory restrictions shall apply to all customers of, or persons who use or receive water from the public service board:

A. All outdoor irrigation of grass, trees, plants or other vegetation on residential and commercial property on the side of the street on which building addresses are even numbered, may be done only Tuesdays, Thursdays and Saturdays; and on the side of the street on which buildings are odd numbered, such vegetation may be irrigated only on Wednesdays, Fridays and Sundays. In case of corner buildings having both odd and even numbers, the number carried on the books of the public service board shall control.

B. All outdoor irrigation of grass, trees, plants or other vegetation on industrial properties, parks, golf courses, schools and cemeteries may be permitted only on Mondays, Wednesdays and Fridays. All other properties, not falling within the industrial classifications described in this subsection, shall be considered residential and shall be watered in accordance with the requirements of subsection A of this section.

C. Outdoor irrigation of grass, trees, plants or other vegetation on City of El Paso parks (with such meter/account under the control and management of the City of El Paso Parks and Recreation Department) may be permitted for more than three days, subject to the submission and approval of an annual Conservation Plan. Time-of-day restrictions apply all year for City parks, with irrigation prohibited from ten a.m. to six p.m.

The City of El Paso Parks and Recreation Department will submit the annual conservation plan to the conservation manager by end-of-January each year. The plan will consist of:

• Conservation goals and targets; total annual water consumption, volume per developed acre, and any other agreed upon metric;

• Conservation improvements implemented in prior year; improvements planned for year ahead, consistent with the Texas Water Development Board municipal parks best management practices;

• Policy statement that any new city parks have been designed to irrigation standards established by the Texas Commission on Environmental Quality; and

• Special variances needed for the year (watering days, new parks, turf renovation, seeding, etc.).

The plan will be considered and approved on an annual basis with previous year compliance taken into account as part of the approval process. All outdoor irrigation shall be subject to the drought and water emergency management response plans adopted by the public service board.

D. From April 1st to September 30th, all outdoor irrigation of vegetation is prohibited between the hours of ten a.m. and six p.m.

E. The review board of the public service board shall have the authority to review special situations and hardship cases upon application of any person in accordance with the procedures set forth in Section 15.13.060 of this chapter. (Ord. 14805 (part), 2001: Ord. 10942 § 2, 1992; Ord. 10503 § 2 (part), 1991)
(Ord. No. 18842, § 1, 9-4-2018)

15.13.030 Nonessential water use restrictions.

The following restrictions shall apply to all customers of or persons who use or receive water from the public service board:

A. 1. The washing of automobiles, trucks, trailers, boats, airplanes and other types of mobile equipment shall be done only with a hand-held bucket or a hand-held hose equipped with a shut-off nozzle that completely shuts off the flow of water, even if left unattended. This restriction does not apply to the washing of the above-listed vehicles or mobile equipment when conducted on the premises of a commercial car wash or a commercial service station. When used in this chapter, "bucket" means a bucket or other container holding five gallons or less;

2. The washing of automobiles, trucks, trailers, boats, and other types of mobile equipment for fund-raising purposes must be conducted at a commercial car wash.

3. Prior to connection of water service to any commercial car wash issued building permits for construction after June 1, 2002, a certification shall be provided to the El Paso Water Utilities that the car wash uses no more than fifty gallons of water per vehicle washed. Absent such certification, no water service will be provided.

B. The following uses of water are defined as "wasting water" and are absolutely prohibited:

1. Irrigating any turf grass, tree, plant, or other vegetation, or otherwise utilizing the city water supply system to permit or cause water to pond, or to flow, spray or otherwise move or be discharged from the premises of any person responsible for any property within the corporate limits of the city, or which receives water from the public service board to or upon any street, alley, gutter or ditch, or other public right-of-way, or into a storm water drainage system or facility;

2. Failing to repair a leak within five working days of the discovery of same;

3. Washing sidewalks, driveways, parking areas, tennis courts, patios or other impervious surface areas with a hose, except in emergencies to remove spills of hazardous materials or to eliminate dangerous conditions which threaten the public health, safety, or welfare. "Impervious surface area" means any structure, street, driveway, sidewalk, patio or other surface area covered with brick, paving, tile or other impervious or nonporous material.

C. When referred to in this subsection, "swimming pool" shall mean any portable or permanent

structure containing a body of water twenty-four inches or more in depth and containing one thousand one hundred twenty-two gallons or more of water and intended for recreational purposes, including a wading pool and as more fully defined under Sections 20.02.1064 and 20.02.1066 of the City Code. All swimming pools, which are constructed after the effective date of the ordinance codified in this chapter, must be equipped with filtration, pumping and recirculation systems. All existing swimming pools not equipped with such shall, within five years of April 1, 1991, be converted to filtration, pumping and recirculation systems, unless the review board, upon application of the pool owner or operator for a variance under Section 15.13.060 of this chapter, grants such a variance or extension of time. It is unlawful to drain swimming pools into the street, alley, gutter or other public right-of-way, ditch, or storm water drainage system or facility. Swimming pools may be drained into the sanitary sewer system only in coordination with El Paso Water Utilities' Wastewater System Division Manager.

D. New or replacement bleeder lines from evaporative coolers shall not be larger than one eighth-inch inside diameter. Bleeder lines shall be conducted outside and discharged so that the effluent can be used for water landscaping and other outdoor vegetation, except where this would be impractical or unfeasible.

E. No person shall use water for non-residential single pass cooling or heating purposes unless the water is reused for other purposes. "Single pass

cooling or heating" means the use of water without recirculation to increase or decrease the temperature of equipment, a stored liquid or a confined airspace. (Ord. 15106 § 1, 2002; Ord. 14805 (part), 2001: Ord. 10505 § 2 (part), 1991)
(Ord. No. 17393, § 9, 8-24-2010, eff. 9-1-2010)

15.13.040 Declaring of nuisance of exist.

The flow of produced water from property into streets, alleys, gutters, and other public rights-of-way, ditches, or into a stormwater drainage system or facility is contrary to the public health, safety and welfare of the citizens of El Paso and is therefore declared to be a nuisance. "Produced water" shall have the same meaning as set forth in Section 15.12.005 (A) of the City Code. Both the city attorney's office and the attorney for the public service board are authorized to take legal action to abate such a nuisance, including but not limited to seeking injunctive relief. This authorization to seek injunctive relief, or other legal action to abate such a nuisance shall not preclude prosecution for a violation of this chapter. (Ord. 14805 (part), 2001: Ord. 10503 § 2 (part), 1991)
(Ord. No. 17393, § 10, 8-24-2010, eff. 9-1-2010)

15.13.050 Large and very large users.

A. For the purpose of this section, a large water user is defined as "any person who uses an average of ten thousand gallons per day or more from the water supply system under the management and control of the public service board." A very large water user is defined as "any person who uses an average of one hundred thousand gallons per day or more from the water supply system under the management and control of the public service board."

B. All new very large water users, or existing very large water users, who apply for new service or an expansion of an existing service shall obtain approval from the public service board before being permitted to connect to the system or to expand within the system. Such large water users shall submit a water conservation plan to the Water Conservation Manager which contains a water use justification report that relates the water consumption to recycling potential and meets the requirements of subsection C of this section. The water conservation manager shall submit a recommendation, based upon this submittal to the public service board which shall render its decision within thirty days of the receipt of the recommendation from the water conservation manager. The water conservation manager shall review all water conservation plans submitted to determine whether the plan meets the requirements of this section. The public service board may approve the application for service with or without conditions, deny the application, or take any other action consistent with the policies expressed in this chapter.

C. All large water users who use more than an average of twenty-five thousand gallons per day shall prepare and submit to the water conservation manager, within six months of April 1, 1991, a water conservation plan, in accordance with this section as a condition for continued use or new service. All large water users, who use more than an average of ten thousand gallons per day but less than twenty-five thousand gallons per day, shall prepare and submit to the water conservation manager, within one year of April 1, 1991, a water conservation plan, in accordance with this section as a condition for continued use or new service. The water conservation plan must demonstrate that reasonable diligence will be used to avoid waste and achieve water conservation. The water conservation plan shall include techniques and technologies that will reduce the consumption of water, reduce the loss or waste of water, improve the efficiency in the use of water, or increase the recycling and reuse of water. All conversion to recycling and reuse of water, if required, shall be accomplished within five years from the date of submittal of the water conservation plan. The water conservation manager may require additional information to be submitted which he/she deems necessary. If the water conservation plan demonstrates that the large water user will use reasonable diligence to avoid waste and achieve water conservation, the water conservation man-

ager shall approve the plan. All approved water conservation plans shall be revised every five years. A fee of twenty-five dollars per plan submittal shall be assessed to defray administrative costs.

D. In considering approval of a water conservation plan, the water conservation manager and the public service board shall consider the climatic conditions, best management practices, best available techniques and technologies, the financial capacity of the applicant, and any other such factors which affect the policy of the city as expressed in the water resource management plan or the conservation policy of the State of Texas, as expressed in Section 1.003 of the Texas Water Code or applicable water conservation regulations providing for the conservation and development of the state's water resources adopted by the Texas Commission on Environmental Quality.

E. Any person whose water conservation plan is disapproved by the water conservation manager may appeal the decision to the review board, the public service board and the city council in accordance with the procedure set forth in Sections 15.13.060 and 15.13.070 of this chapter. (Ord. 16822 § 1 (part), 2008; Ord. 14805 (part), 2001: Ord. 10503 § 2 (part), 1991)

15.13.060 Variances and permits.

A. Owners of newly seeded or sodded turf grass and landscaping and new residential and commercial developments may receive a landscape watering permit upon application and approval by the water conservation manager allowing for daily watering of the same until the turf grass and landscaping are established, which shall not exceed thirty days.

B. The planning and development manager, water supply manager and general manager of the public service board, or his designee, shall be immediately established as a review board to review hardship and special cases which cannot fully comply with the provisions of this chapter after recommendation by the water conservation manager. The review board will review hardship or special cases to determine whether a particular case warrants a variance or permit and shall hear appeals from any person whose water conservation plan is rejected by the water conservation manager. The review board shall consider the facts of each case separately and decide whether to grant a variance or permit within ten working days of the receipt of a properly completed "Application for Variance/Permit" form which shall be developed by the water conservation manager. A variance shall be granted only for reasons of economic hardship, medical hardship, or if there is a legitimate public health or safety concern that will be promoted or fulfilled as a result of granting the permit or variance. An "economic hardship" is defined as a threat to an individual's or business' primary source of income, and where not granting the variance would result in material structural damage to the person's property. A "medical hardship" is defined as a situation where it is determined that a person's ill health or medical condition requires a dependency upon others to water or irrigate. Under no circumstances shall inconvenience or the potential for damages of landscaping be considered an economic hardship or significant damage to property which justifies a variance. The review board shall authorize only the implementation of equitable water use restrictions which further the intent of the public service board's water conservation plan. Any special water use restrictions authorized by the review board in each hardship or special case shall be set forth on the face of the variance or the permit. A fee of twenty-five dollars shall be assessed per application to defray administrative costs. The fee may be waived upon the execution of an affidavit stating that applicant for the variance is unable to pay the fee and such affidavit shall be sworn before a notary public. Final determination of an applicant's inability to pay shall be made by the water conservation manager.

C. A variance or permit issued under this section expires under its own terms and conditions, but in no event shall a variance or permit be issued for a period of more than five years from the date of issuance. Any person issued a variance

or permit must fully comply with all the provisions of this chapter as an express condition of that person's variance or permit.

D. Any person who is issued a variance or permit and uses water supplied or delivered by the public service board shall provide proof of such variance or permit upon demand by any person authorized to enforce this chapter. Upon conviction of violating any provision of this chapter, the review board may revoke or suspend any permit or variance previously granted. Provided, however, the review board shall notify the permittee of the proposed revocation five working days before taking such action, and if within that time the permittee requests a hearing in writing, the permittee shall be given an opportunity to be heard by the review board prior to taking such action.

E. No prosecution for a violation of any provision of this chapter may be suspended for the sole purpose of allowing a person to obtain a variance or permit. (Ord. 14805 (part), 2001: Ord. 10942 § 3, 1992; Ord. 10503 § 2 (part), 1991)

15.13.070 Appeal to public service board and city council.

A. Any person who applies for a permit or variance under Section 15.13.060 and is denied such permit or variance by the review board, or whose permit or variance is revoked or suspended by the review board, or whose water conservation plan is disapproved by the review board, may appeal the decision of the review board by filing an intention to appeal in writing with the general manager of the public service board within five working days of the review board's decision. If a proper appeal is timely filed, the public service board will hear the appeal within thirty days of the time the appeal is filed with the general manager. The public service board may take any action it deems necessary with regard to the appeal including denying same, granting same, or granting the requested permit or variance with conditions, or approving the water conservation plan. The decision of the review board shall be final and binding if there is no timely filing of an appeal in accordance with this section.

B. Any person, whose appeal to the public service board is denied, may appeal the decision of the public service board by filing an intention to appeal in writing with the city clerk within five working days of the public service board's decision. If a proper appeal is timely filed, the city council will hear the appeal within thirty days of the time the appeal is filed with the city clerk. The city council may take any action it deems necessary with regard to the appeal including denying same, granting same or granting the requested permit or variance with conditions, or approving the water conservation plan. The decision of the city council shall be final and binding. The decision of the public service board shall be final and binding if there is no timely filing of an appeal in accordance with this section. (Ord. 14805 (part), 2001: Ord. 10503 § 2 (part), 1991)

15.13.080 Penalty.

Any person who violates any of the provisions of this chapter shall be deemed guilty of a misdemeanor and upon conviction, shall be punished by a fine not less than fifty dollars and not to exceed five hundred dollars. The violation of each provision of this chapter, and each separate violation thereof, shall be deemed a separate offense and shall be punished accordingly. (Ord. 14805 (part), 2001: Ord. 10503 § 2 (part), 1991)

15.13.090 Other enforcement action.

Nothing contained in Section 15.13.080, or any other provision of this chapter, shall prevent either the public service board or the city from seeking compliance with or enforcement of this chapter, from seeking injunctive relief in a court of competent jurisdiction, or from utilizing any other civil or equitable remedy to enforce the provisions of this chapter. Both the city attorney's office and the public service board's attorney are authorized to institute injunctive relief or any other civil action deemed necessary to enforce compliance with the provisions of this chapter. The public service board's attorney has no authority for criminal enforcement under this chapter. (Ord. 14805 (part), 2001: Ord. 10503 § 2 (part), 1991)

15.13.100 Exceptions to enforcement.

The following shall constitute exceptions from compliance with the provisions of this chapter:

A. The water is a result of natural events such as rain or snow;

B. The flow is a result of temporary failures or malfunctions of the water supply system;

C. The flow is a result of water used for firefighting purposes including the inspection and pressure testing of fire hydrants or the use of water for firefighting training activities;

D. The use of water is required for the control of dust or the compaction of soil as may be required by this code;

E. The water is used to wash down areas where flammable or otherwise hazardous material has been spilled and creates a dangerous condition;

F. The water is used to prevent or abate public health, safety or accident hazards when alternate methods are not available;

G. The water is used for routine inspection or maintenance of the water supply system;

H. The water is used to facilitate construction within public right-of-way in accordance with the requirements of the city and good construction practices;

I. The use of water is permitted under the terms of a variance, permit or compliance agreement granted by the review board or the public service board;

J. The water that is used for street sweeping, sewer maintenance or other established utility and public works practices;

K. Watering contrary to the even/odd watering requirements, under Sections 15.13.020(A) and 15.13.020(B), and from the time of day watering requirements under Section 15.13.020(C), may be permissible for one day only where application of chemicals requires immediate watering to preserve an existing lawn. In cases of commercial application, a receipt from a commercial lawn treatment company indicating the date of treatment, the address of the property treated, the name and address of the commercial contractor, and the chemical treatment required shall constitute evidence that the owner or person responsible for the property is entitled to this exception. Where treatment with a noncommercial application of chemicals requires immediate watering to preserve an existing lawn, the owner or person responsible for the property must contact the water conservation department prior to the application of chemicals and provide evidence satisfactory to the water conservation manager for approval of this exception;

L. Outdoor irrigation necessary for the establishment of newly seeded or sodded turf grass and landscaping in new residential and commercial developments;

M. Plants which cannot be kept alive without daily watering may be permitted to be watered from a bucket but not from the use of a hose on the days when watering is prohibited. (Ord. 14085 (part), 2001: Ord. 10942 § 4, 1992; Ord. 10503 § 2 (part), 1991)

15.13.110 Issuance of citations.

The water conservation manager or designee, or any other personnel authorized to issue class C misdemeanor citations are authorized to issue citations for violations of this chapter. (Ord. 14805 (part), 2001: Ord. 13152 § 129, 1997: Ord. 10503 § 2 (part), 1991)

15.13.120 Water emergency—Restriction of water use.

The general manager may implement the following additional restrictions and regulations curtailing water use upon the declaration of a water emergency by the mayor upon recommendation of the public service board:

A. Prohibit all restaurants from serving water to their customers except when specifically requested by the customer;

B. Prohibit the operation of any ornamental fountain or similar structure;

C. Suspend the issuance of all variances or permits hereunder;

D. Prohibit the filling, refilling or adding of water to all swimming pools;

E. Prohibit the washing of all vehicles and equipment except upon the premises of a commercial car wash;

F. Require that the washing of motor vehicles, airplanes, boats or other types of mobile equipment, upon the immediate premises of a commercial car wash or a commercial service station, shall occur only between the hours of twelve noon and five p.m.

The mayor may declare a water emergency in case of a severe drought, in the event of any condition which interrupts the ability of the public service board to supply water, where curtailment of the use of water is necessary due to war, a natural disaster, to protect the public health, safety or welfare, or to preserve the water supply. In the event such water emergency is to continue for more than five days, such measures must be passed by resolution by majority of city council in order for the declaration of emergency to continue beyond the initial five day period. During such a water emergency, the general manager may impose any additional restrictions on the use of water from the city's water supply system in all or in any part of the city as the city council may authorize. (Ord. 15106 § 3, 2002: Ord. 14805 (part), 2001: Ord. 10503 § 2 (part), 1991)

15.13.130 Turf grass prohibited.

A. Turf grass is prohibited in all parkways, narrow strips of land and sloped areas within new residential or commercial sites for which a building permit is issued after June 1, 2002, unless irrigated with sub-surface irrigation. For purposes of this section, "sloped areas" means an area with a slope ratio of one to three or greater from the horizontal. "Sub-surface irrigation" means a low pressure irrigation system installed below the surface of the ground or mulch, consisting of a water distribution system equipped with pre-installed water emitters that are rated by gallons per hour, and that is suitable for turf grass irrigation.

B. Turf grass for residential sites after June 1, 2002, shall not be used for more than fifty percent of the total area to be landscaped (front and back yard).

C. Turf grass for commercial sites after June 1, 2002, shall not be used for more than thirty-three and one-third of the total area to be landscaped (front and back yard). (Ord. 15106 § 2, 2002: Ord. 14805 (part), 2001)

15.13.140 Drought and water emergency management response plan.

It shall be unlawful to violate the imposed provisions of the drought and water emergency management response plan, dated November, 2002, after the declaration of a drought or water emergency and imposition of restrictions in accordance with the plan. (Ord. 15375, 2003: Ord. 14805 (part), 2001)

Chapter 15.16

DISCHARGES TO STORM SEWERS AND OTHER PUBLIC RIGHTS-OF-WAY

Sections:

15.16.010 Prohibition.

15.16.020 Penalty.

15.16.020-1 Civil penalty.

15.16.030 Issuance of citations.

15.16.010 Prohibition.

Any discharge into any street, gutter, ditch, channel, watercourse, drain, stormwater inlet or storm sewer of any wastewater, including but not limited to sand/grit trap sludges and restaurant grease trap sludges, or liquid waste containing cement, concrete, building materials, oil, chemicals, wastewater or other liquid industrial waste, such as all waterborne solids, liquids or gaseous waste containing toxic or poisonous substances in amounts prohibited by any federal or state regulation or any substance which can block or interfere with the flow in any of the previously named storm sewers and other public rights-of-way is prohibited. Any discharge of process water into the city's stormwater collection system, which is in accordance with city-issued permit, which may be based upon a National Pollutant Discharge Elimination System (NPDES) permit and applicable state permits, shall be an exception to this prohibition. (Ord. 11225 § 1, 1992: Ord. 10661 § 1 (part), 1991)

15.16.020 Penalty.

Any person violating any provision of this chapter shall be deemed guilty of a misdemeanor and upon conviction thereof shall be punished by a fine not to exceed two thousand dollars per violation, and if such violation is a continuous one, each day's violation shall constitute a separate offense. (Ord. 10661 § 1 (part), 1991)

15.16.020-1 Civil penalty.

Any person who violates a provision of the city code relating to point source effluent limitations or the discharge of a pollutant, other than from a nonpoint source, into a sanitary or stormwater sewer system owned or controlled by the city shall be subject to a civil penalty up to a maximum of five thousand dollars per violation. If the violation is a continuous one, each day's violation shall constitute a separate offense. (Ord. 11545 § 2, 1993)

15.16.030 Issuance of citations.

Any environmental enforcement supervisor, environmental enforcement inspector, civil works inspector or any other personnel authorized to issue Class C misdemeanor citations is authorized to issue citations for violations of this chapter. (Ord. 10661 § 1 (part), 1991)

Chapter 15.17

CABLE TELEVISION RATE REGULATIONS

Sections:

15.17.010 Definitions.

15.17.020 Initial review of basic cable rates.

15.17.030 Review of request for increase in basic cable rates.

15.17.040 Cable operator information.

15.17.050 Automatic rate adjustments.

15.17.060 Enforcement.

15.17.070 Construction of laws—FCC regulations.

15.17.010 Definitions.

"Basic cable rates" means the monthly charges for a subscription to the basic service tier and associated equipment.

"Basic service tier" means a separately available service tier to which subscription is required for access to any other tier of service, including as a minimum, but not limited to, all must-carry signals, all PEG channels, and all domestic television signals other than superstations.

"Benchmark" means a per channel rate of charge for cable service and associated equipment which the FCC has determined is reasonable.

"Cable Act of 1992" means the Cable Television Consumer Protection and Competition Act of 1992.

"Cable operator" means any person or group of persons:

1. Who provide cable service over a cable system and directly or through one or more affiliates owns a significant interest in such a cable system; or

2. Who otherwise controls or is responsible for, through any arrangement, the management and operation of such a cable system.

"Channel" means a unit of cable service identified and selected by a channel number or similar designation.

"Cost of service showing" means a filing in which the cable operator attempts to show that the benchmark rate or the price cap is not sufficient to allow the cable operator to fully recover the costs of providing the basic service tier and to continue to attract capital.

"FCC" means the Federal Communications Commission.

"Initial basic cable rates" means the rates that the cable operator is charging for the basic service tier, including charges for associated equipment, at the time the city notifies the cable operator of the city's qualification and intent to regulate basic cable rates.

"Must-carry signal" means the signal of any local broadcast station (except superstations which is required to be carried on the basic service tier).

"Peg channel" means the channel capacity designated for public, educational, or governmental use, and facilities and equipment for the use of that channel capacity.

"Price cap" means the ceiling set by the FCC on future increases in basic cable rates regulated by the city, based on a formula using the GNP fixed weight price index, reflecting general increases in the cost of doing business and changes in overall inflation.

"Reasonable rate standard" means a per channel rate that is at, or below, the benchmark or price cap level.

"Superstation" means any nonlocal broadcast signal secondarily transmitted by satellite. (Ord. 11635 § 1 (part), 1993)

15.17.020 Initial review of basic cable rates.

A. Notice. Upon the adoption of the ordinance codified in this chapter and the certification of the city by the FCC, the city shall immediately notify all cable operators in the city, by certified mail, return receipt requested, that the city intends to regulate subscriber rates charged for the basic service tier and associated equipment as authorized by the Cable Act of 1992.

B. Cable Operator Response. Within thirty days of receiving notice from the city, a cable

operator shall file with the city, its current rates for the basic service tier and associated equipment and any supporting material concerning the reasonableness of its rates.

C. Expedited Determination and Public Hearing.

1. If the city council is able to expeditiously determine that the cable operator's rates for the basic service tier and associated equipment are within the FCC's reasonable rate standard, as determined by the applicable benchmark, the city council shall:

a. Hold a public hearing at which interested persons may express their views; and

b. Act to approve the rates within thirty days from the date the cable operator filed its basic cable rates with the city.

2. If the city council takes no action within thirty days from the date the cable operator filed its basic cable rates with the city, the proposed rates will continue in effect.

D. Extended Review Period.

1. If the city council is unable to determine whether the rates in issue are within the FCC's reasonable rate standard based on the material before it, or if the cable operator submits a cost-of-service showing, the city council shall, within thirty days from the date the cable operator filed its basic cable rates with the city and by adoption of a formal resolution, invoke the following additional periods of time, as applicable, to make a final determination:

a. Ninety days if the city council needs more time to ensure that a rate is within the FCC's reasonable rate standards; or

b. One hundred fifty days if the cable operator has submitted a cost-of-service showing seeking to justify a rate above the applicable benchmark.

2. If the city council has not made a decision within the ninety or one hundred fifty day period, the city council shall issue a brief written order at the end of the period requesting the cable operator to keep accurate account of all amounts received by reason of the proposed rate and on whose behalf the amounts are paid.

E. Public Hearing. During the extended review period and before taking action on the proposed rate, the city council shall hold at least one public hearing at which interested persons may express their views and record objections.

F. Objections. An interested person who wishes to make an objection to the proposed initial basic rate may request the city clerk to record the objection during the public hearing or may submit the objection in writing anytime before the decision resolution is adopted. In order for an objection to be made part of the record, the objector must provide the city clerk with the objector's name and address.

G. Benchmark Analysis. If a cable operator submits its current basic cable rate schedule as being in compliance with the FCC's reasonable rate standard, the city council shall review the rates using the benchmark analysis in accordance with the standard form authorized by the FCC. Based on the city council's findings, the initial basic cable rates shall be established as follows:

1. If the current basic cable rates are below the benchmark, those rates shall become the initial basic cable rates and the cable operator's rates will be capped at that level.

2. If the current basic cable rates exceed the benchmark, the rates shall be the greater of the cable operator's per channel rate on September 30, 1992, reduced by ten percent, or the applicable benchmark, adjusted for inflation and any change in the number of channels occurring between the September 30, 1992, and the initial date of regulation.

3. If the current basic cable rates exceed the benchmark, but the cable operator's per channel rate was below the benchmark on September 30, 1992, the initial basic cable rate shall be the benchmark, adjusted for inflation.

H. Cost-of-Service Showings. If a cable operator does not wish to reduce the rates to the permitted level, the cable operator shall have the op-

portunity to submit a cost-of-service showing in an attempt to justify an initial basic cable rates above the FCC's reasonable rate standard. The city council will review a cost-of-service submission pursuant to FCC standards for cost-of-service review. The city council may approve initial basic cable rates above the benchmark if the cable operator makes the necessary showing; however, a cost-of-service determination resulting in rates below the benchmark or below the cable operator's September 30, 1992 rates minus ten percent, will prescribe the cable operator's new rates.

I. Decision.

1. By Formal Resolution. After completion of its review of the cable operator's proposed rates, the city council shall adopt its decision by formal resolution. The decision shall include one of the following:

a. If the proposal is within the FCC's reasonable rate standard or is justified by a cost-of-service analysis, the city council shall approve the initial basic cable rates proposed by the cable operator; or

b. If the proposal is not within the FCC's reasonable rate standard and the cost-of-service analysis, if any, does not justify the proposed rates, the city council shall establish initial basic cable rates that are within the FCC's reasonable rate standard or that are justified by a cost-of-service analysis.

2. Rollbacks and Refunds. If the city council determines that the initial basic cable rates as submitted exceed the reasonable rate standard or that the cable operator's cost-of-service showing justifies lower rates, the city council may order the rates reduced in accordance with subsections (G) or (H) of this section, as applicable. In addition, the city council may order the cable operator to pay to subscribers, refunds of the excessive portion of the rates with interest (computed at applicable rates published by the Internal Revenue Service for tax refunds and additional tax payments), retroactive to September 1, 1993. The method for paying any refund and the interest rate will be in accordance with FCC regulations as directed in the city council's decision resolution.

3. Statement of Reasons for Decision and Public Notice. If rates proposed by a cable operator are disapproved in whole or in part, or if there were objections made by other parties to the proposed rates, the resolution must state the reasons for the decision and the city council must give public notice of its decision. Public notice will be given by advertisement once in the official newspaper of the city.

J. Appeal. The city council's decision concerning rates for the basic service tier or associated equipment, may be appealed to the FCC in accordance with applicable federal regulations. (Ord. 11635 § 1 (part), 1993)

15.17.030 Review of request for increase in basic cable rates.

A. Notice. A cable operator in the city who wishes to increase the rates for the basic service tier or associated equipment shall file a request with the city and notify all subscribers at least thirty days before the cable operator desires the increase to take effect. This notice may not be given more often than annually and not until at least one year after the determination of the initial basis cable rates.

B. Expedited Determination and Public Hearing.

1. If the city council is able to expeditiously determine that the cable operator's rate increase request for basic cable service is within the FCC's reasonable rate standard, as determined by the applicable price cap, the city council shall:

a. Hold a public hearing at which interested persons may express their views; and

b. Act to improve the rate increase within thirty days from the date the cable operator filed its request with the city.

2. If the city council takes no action within thirty days from the date the cable operator filed its request with the city, the proposed rates will go into effect.

C. Extended Review Period.

1. If the city council is unable to determine whether the rate increase is within the FCC's reasonable rate standard based on the material before it, or if the cable operator submits a cost-of-service showing, the city council shall, by adoption of a formal resolution, invoke the following additional periods of time, as applicable, to make a final determination:

a. Ninety days if the city council needs more time to ensure that the requested increase is within the FCC's reasonable rate standard as determined by the applicable price cap; and

b. One hundred fifty days if the cable operator has submitted a cost-of-service showing seeking to justify a rate increase above the applicable price cap.

2. The proposed rate increase is tolled during the extended review period.

3. If the city council has not made a decision within the ninety or one hundred fifty day period, the city council shall issue a brief written order at the end of the period requesting the cable operator to keep accurate account of all amounts received by reason of the proposed rate increase and on whose behalf the amounts are paid.

D. Public Hearing. During the extended review period and before taking action on the requested rate increase, the city council shall hold at least one public hearing at which interested persons may express their views and record objections.

E. Objections. An interested person who wishes to make an objection to the proposed rate increase may request the city clerk to record the objection during the public hearing or may submit the objection in writing anytime before the decision resolution is adopted. In order for an objection to be made part of the record, the objector must provide the city clerk with the objector's name and address.

F. Delayed Determination. If the city council is unable to make a final determination concerning a requested rate increase within the extended time period, the cable operator may put the increase into effect, subject to subsequent refund if the city council later issues a decision disapproving any portion of the increase.

G. Price Cap Analysis. If a cable operator presents its request for a rate increase as being in compliance with the FCC's price cap, the city council shall review the rate using the price cap analysis in accordance with the standard form authorized by the FCC. Based on the city council's findings, the basic cable rates shall be established as follows:

1. If the proposed basic cable rate increase is within the price cap established by the FCC, the proposed rates shall become the new basic cable rates.

2. If the proposed basic rate increase exceeds the price cap established by the FCC, the city council shall disapprove the proposed rate increase and order an increase that is in compliance with the price cap.

H. Cost-of-Service Showings. If a cable operator submits a cost-of-service showing in an attempt to justify a rate increase above the price cap, the city council will review the submission pursuant the FCC standards for cost-of-service review. The city council may approve a rate increase above the price cap if the cable operator makes the necessary showing; however, a cost-of-service determination resulting in a rate below the price cap or below the cable operator's then current rate will prescribe the cable operator's new rate.

I. Decision. The city council's decision concerning the requested rate increase, shall be adopted by formal resolution. If a rate increase proposed by a cable operator is disapproved in whole or in part, or if objections were made by other parties to the proposed rate increase, the resolution must state the reasons for the decision. Objections may be made at the public hearing by a person requesting the city clerk to record the objection or may be submitted in writing at anytime before the decision resolution is adopted.

J. Refunds.

1. The city council may order refunds of subscribers' rate payments with interest if:

a. The city council was unable to make a decision within the extended time period as described in subsection C of this section;

b. The cable operator implemented the rate increase at the end of the extended review period; and

c. The city council determines that the rate increase as submitted exceeds the applicable price cap or that the cable operator failed to justify the rate increase by a cost-of-service showing, and the city council disapproves any portion of the rate increase.

2. The method for paying any refund and the interest rate will be in accordance with FCC regulations as directed in the city council's decision resolution.

K. Appeal. The city council's decision concerning rates for the basic service tier or associated equipment, may be appealed to the FCC in accordance with applicable federal regulations. (Ord. 11635 § 1 (part), 1993)

15.17.040 Cable operator information.

A. City May Require.

1. In those cases when the cable operator has submitted initial rates or proposed an increase that exceeds the reasonable rate standard, the city council may require the cable operator to produce information in addition to that submitted, including proprietary information, if needed to make a rate determination. In these cases, a cable operator may request the information be kept confidential in accordance with this section.

2. In cases where initial or proposed rates comply with the reasonable rate standard, the city council may request additional information only in order to document that the cable operator's rates are in accord with the standard.

B. Request for Confidentiality.

1. A cable operator submitting information to the city council may request in writing that the information not be made routinely available for building services department. A copy of the request shall be attached to and cover all of the information and all copies of the information to which it applies.

2. If feasible, the information to which the request applies shall be physically separated from any information to which the request does not apply. If this is not feasible, the portion of the information to which the request applies shall be identified.

3. Each request shall contain a statement of the reasons for withholding inspection and a statement of the facts upon which those reasons are based.

4. Casual requests which do not comply with the requirements of this subsection shall not be considered.

C. City Council Action. Requests which comply with the requirements of subsection B of this section, will be acted upon by the city council. The city council will grant the request if the cable operator presents by a preponderance of the evidence, a case for nondisclosure consistent with applicable federal regulations. If the request is granted, the ruling will be placed in a public file in lieu of the information withheld from building services department. If the request does not present a case for nondisclosure and the city council denies the request, the city council shall take one of the following actions:

1. If the information has been submitted voluntarily without any direction from the city, the cable operator may request that the city return the information without considering it. Ordinarily, the city will comply with this request. Only in the unusual instance that the public interest so requires, will the information be made available for building services department.

2. If the information was required to be submitted by the city council, the information will be made available for building services department.

D. Appeal. If the city council denies the request for confidentiality, the cable operator may seek review of that decision from the FCC within five working days of the city council's decision,

and the release of the information will be stayed pending review. (Ord. 13152 § 130, 1997; Ord. 11635 § 1 (part), 1993)

15.17.050 Automatic rate adjustments.

A. Annual Inflation Adjustment. In accordance with FCC regulations, the cable operator may adjust its capped base per channel rate for the basic service tier annually by the final GNP-PI index.

B. Other External Costs.

1. The FCC regulations also allow the cable operator to increase its rate for the basic service tier automatically to reflect certain external cost factors to the extent that the increase in cost of those factors exceeds the GNP-PI. These factors include retransmission consent fees, programming costs, state and local taxes applicable to the provision of cable television service, and costs of franchise requirements. The total cost of an increase in a franchise fee may be automatically added to the base per channel rate, without regard to its relation to the GNP-PI.

2. For all categories of external costs other than retransmission consent and franchise fees, the starting date for measuring changes in external costs for which the basic service per channel rate may be adjusted will be the date on which the basic service tier becomes subject to regulation or February 28, 1994, whichever occurs first. The permitted per channel charge may not be adjusted for costs of retransmission consent fees or changes in those fees incurred before October 6, 1994.

C. Notification and Review. The cable operator shall notify the city at least thirty days in advance of a rate increase based on automatic adjustment items. The city shall review the increase to determine whether the item or items qualify as automatic adjustments. If the city makes no objection within thirty days of receiving notice of the increase, the increase may go into effect. (Ord. 11635 § 1 (part), 1993)

15.17.060 Enforcement.

A. Refunds. The city may order the cable operator to refund to subscribers a portion of previously paid rates under the following circumstances:

1. A portion of the previously paid rates have been determined to be in excess of the permitted tier charge or above the actual cost of equipment; or

2. The cable operator has failed to comply with a valid rate order issued by the city.

B. Fines. If the cable operator fails to comply with a rate decision or refund order, the cable operator shall be subject to a fine of five hundred dollars for each day the cable operator fails to comply. (Ord. 11635 § 1 (part), 1993)

15.17.070 Construction of laws—FCC regulations.

The regulations set forth in this chapter are in addition to and cumulative of any regulations enacted by the FCC or other laws for the regulation of cable television services and equipment rates. To the extent that these regulations are irreconcilable with the FCC regulations for cable television services and rates, the FCC regulations prevail. Where the city has enacted regulations which are more stringent or restrictive than the FCC regulations for cable television services and rates, the city's regulations shall prevail as permitted under FCC regulations or other applicable laws. (Ord. 11635 § 1 (part), 1993)

Chapter 15.18

CABLE TELEVISION CUSTOMER SERVICE REGULATIONS

Sections:

15.18.010 Definitions.

15.18.020 Cable system office hours and telephone availability.

15.18.030 Installations, outages and service calls.

15.18.040 Communications between cable operators and cable subscribers.

15.18.050 Complaint procedures.

15.18.060 Enforcement.

15.18.070 Construction of laws—FCC regulations.

15.18.010 Definitions.

For the purposes of this chapter, the words set forth in this section shall have the following meanings:

"Normal business hours" means those hours during which most similar businesses in the community are open to serve customers. In all cases, "normal business hours" must include some evening hours at least one night per week or some weekend hours.

"Normal operating conditions" means those service conditions which are within the control of the cable operator. Those conditions which are not within the control of the cable operator include, but are not limited to, natural disasters, civil disturbances, power outages, telephone network outages, and severe or unusual weather conditions. Those conditions which are ordinarily within the control of the cable operator include, but are not limited to, special promotions, pay-per-view events, rate increases, regular park or seasonal demand periods, and maintenance or upgrade of the cable system.

"Service interruption" means the loss of picture or sound on one or more cable channels.

"Standard installation" means that installation that is located up to one hundred twenty-five feet from the existing distribution system. (Ord. 11636 § 1 (part), 1993)

15.18.020 Cable system office hours and telephone availability.

A. The cable operator will maintain a local, toll-free or collect call telephone access line which will be available to its subscribers twenty-four hours a day, seven days a week.

1. Trained company representatives will be available to respond to customer telephone inquiries during normal business hours.

2. After normal business hours, the access line may be answered by a service or an automated response system, including an answering machine. Inquires received after normal business hours must be responded to by a trained company representative on the next business day.

B. Under normal operating conditions, telephone answer time by a customer representative, including wait time, shall not exceed thirty seconds when the connection is made. If the call needs to be transferred, transfer time shall not exceed thirty seconds. These standards shall be met no less than ninety percent of the time under normal operating conditions, measured on a quarterly basis.

C. The operator will not be required to acquire equipment or perform surveys to measure compliance with the telephone answering standards above unless any historical records of complaints indicates a clear failure to comply.

D. Under normal operating conditions, the customer will receive a busy signal less than three percent of the time.

E. Customer service center and bill payment locations will be open at least during normal business hours and will be conveniently located. (Ord. 11636 § 1 (part), 1993)

15.18.030 Installations, outages and service calls.

Under normal operating conditions, each of the following standards will be met no less than ninety-five percent of the time measured on a quarterly basis:

A. Standard installations will be performed within seven business days after an order has been placed.

B. Excluding conditions beyond the control of the operator, the cable operator will begin working on "service interruptions" promptly and in no event later than twenty-four hours after the interruption becomes known. The cable operator must begin actions to correct other service problems the next business day after notification of the service problem.

C. The "appointment window" alternatives for installations, service calls, and other installation activities will be either a specific time or, at maximum, a four-hour block during normal business hours. The operator may schedule service calls and other installation activities outside of normal business hours for the express convenience of the customer.

D. An operator may not cancel an appointment with a customer after the close of business on the business day prior to the scheduled appointment.

E. If a cable operator representative is running late for an appointment with a customer and will not be able to keep the appointment as scheduled, the customer will be contacted. The appointment will be rescheduled, as necessary, at a time which is convenient for the customer. (Ord. 11636 § 1 (part), 1993)

15.18.040 Communications between cable operators and cable subscribers.

A. Notifications to Subscribers.

1. The cable operator shall provide written information on each of the following areas at the time of installation of service, at least annually to all subscribers, and at any time upon request:

a. Products and services offered;

b. Prices and options for programming services and conditions of subscription to programming and other services;

c. Installation and service maintenance policies;

d. Instructions on how to use the cable service;

e. Channel positions programming carried on the system; and

f. Billing and complaint procedures, including the address and telephone number of the city's cable communications commission.

2. Customers will be notified of any changes in rates, programming services or channel positions as soon as possible through announcements on the cable system and in writing. Notice must be given to subscribers a minimum of thirty days in advance of such changes if the change is within the control of the cable operator. In addition, the cable operator shall notify subscribers thirty days in advance of any significant changes in the other information required by the preceding paragraph.

B. Billing.

1. Bills will be clear, concise and understandable. Bills must be fully itemized, with itemizations including, but not limited to, basic and premium service charges and equipment charges. Bills will also clearly delineate all activity during the billing period, including optional charges, rebates and credits.

2. In case of a billing dispute, the cable operator must respond to a written complaint from a subscriber within thirty days.

C. Refunds. Refund checks will be issued promptly, but no later than either:

1. The customer's next billing cycle following resolution of the request or thirty days, whichever is earlier; or

2. The return of the equipment supplied by the cable operator if service is terminated.

D. Credits. Credits for service will be issued no later than the customer's next billing cycle following the determination that a credit is warranted. (Ord. 11636 § 1 (part), 1993)

15.18.050 Complaint procedures.

A. A subscriber who wishes to file a service-related complaint with the city against a cable operator must notify the city of such complaint in writing. A copy of the complaint must be forwarded by the subscriber to the cable operator.

B. The cable operator shall, within fifteen days of receipt of the complaint, provide a written response to the city and the complaining subscriber. Such response should include a proposed resolution to the alleged violations asserted in the complaint.

C. A complaining subscriber shall have fifteen days following the subscriber's receipt of the cable operator's response to notify the city and cable operator in writing of either of the following:

1. The subscriber's acceptance or rejection of the cable operator's proposed resolution; or

2. The subscriber's proposed resolution of the complaint.

A subscriber's failure to provide such written notification shall be deemed an acceptance of the cable operator's proposed solution. Where a subscriber proposes a resolution of the complaint, the cable operator shall have fifteen days following the cable operator's receipt of the subscriber's proposed resolution to notify the city and subscriber of its acceptance or rejection of the subscriber's proposed resolution.

D. Where a resolution to the complaint is not agreed upon by the cable operator and subscriber, the city may impose a resolution to be binding upon both the cable operator and the complaining subscriber.

E. To the extent allowed by law, a cable operator or subscriber may appeal a city-imposed resolution to the Federal Communications Commission. (Ord. 11636 § 1 (part), 1993)

15.18.060 Enforcement.

A. The city may enforce these customer service standards as permitted under the federal, state or local laws and regulations. The city shall have the right to inspect a cable operator's business records and equipment of a cable operator to assure compliance with the provisions of this chapter.

B. The city shall adopt rules of procedure for enforcement of this chapter. (Ord. 11636 § 1 (part), 1993)

15.18.070 Construction of laws—FCC regulations.

The regulations set forth in this chapter are in addition to and cumulative of any regulations enacted by the FCC or other laws for the regulation of cable television customer service. To the extent that these regulations are irreconcilable with the FCC regulations for cable television services and rates, the FCC regulations prevail. Where the city has enacted regulations which are more stringent or restrictive than the FCC regulations for cable television services and rates, the city's regulations shall prevail as permitted under FCC regulations or other applicable laws. (Ord. 11636 § 1 (part), 1993)

Chapter 15.20

STORMWATER MANAGEMENT

Sections:

15.20.010 Purpose.

15.20.020 Scope.

15.20.030 Administration.

15.20.040 Duties and responsibilities of stormwater administrator.

15.20.050 Duties and responsibilities of the director of the department of transportation.

15.20.060 Abbreviations.

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15.20.080 General prohibition.

15.20.090 Specific prohibitions and requirements.

15.20.100 Release reporting and cleanup.

15.20.110 Stormwater discharge from construction activities.

15.20.120 Stormwater discharges associated with industrial activity.

15.20.130 Application of SDPCP.

15.20.140 Citizen participation.

15.20.150 Criminal penalty.

15.20.160 Authority to issue citations.

15.20.010 Purpose.

The purpose of this chapter is for the elimination or reduction of pollutants from entering the city's municipal separate storm sewer system and for control over discharges to and from the system. The provisions of this chapter are to complement the health and safety ordinance, the public services ordinance, the streets, sidewalks and public places ordinance, all agreements with the city and the building and construction ordinance. It shall be the purpose of this chapter:

A. To maintain and improve the quality of surface water and groundwater within the jurisdiction of the city.

B. To prevent the discharge of contaminated stormwater runoff from industrial, commercial, residential, and construction sites into the municipal separate storm sewer system (MS4) and natural waters within the city.

C. To promote public awareness of the hazards involved in the improper discharge of hazardous substances, petroleum products, household hazardous waste, industrial waste, sediment from construction sites, pesticides, herbicides, fertilizers, and other contaminants into the storm drains and natural waters of the city.

D. To encourage recycling of used motor oil and safe disposal of other hazardous consumer products.

E. To facilitate compliance with state and federal standards and permits by owners and operators of facilities engaged in industrial activities and construction sites within the city.

F. To enable the city to comply with all federal and state laws, regulations and permits applicable to stormwater discharge. (Ord. 13477 § 1 (part), 1998)

15.20.020 Scope.

This chapter shall apply to any stormwater discharge associated with industrial activity, as defined by Section 122.26(b)(14) of Title 40, Code of Federal Regulations. (Ord. 13477 § 1 (part), 1998)

15.20.030 Administration.

The city manager shall, to the extent that the duties and responsibilities established in Section 15.20.040 have not been delegated or assumed by another person, agency, department or entity pursuant to other ordinances adopted by the city, designate the stormwater administrator who shall then undertake the duties and responsibilities established in Section 15.20.040, and administer and coordinate the implementation and enforcement of all provisions of this chapter. (Ord. 14456 § 1, 2000: Ord. 13477 § 1 (part), 1998)
(Ord. No. 17393, § 11, 8-24-2010, eff. 9-1-2010)

15.20.040 Duties and responsibilities of stormwater administrator.

Duties and responsibilities of the stormwater administrator shall include, but not be limited to, the following:

A. Be the custodian of the MS4, including all dams, detention and retention basins, storm drains, outlet working channels and pumping stations;

B. Maintain and hold open for public inspection all records pertaining to the provisions of this chapter;

C. Review permit applications to determine whether proposed developments will eliminate or reduce the pollutants entering the MS4;

D. Review, approve or deny all applications for development permits required by adoption of this chapter;

E. Review permits for proposed development to assure that all necessary permits have been obtained from those federal, state or local governmental agencies (including Section 404 of the Federal Water Pollution Control Act Amendments of 1972, 33 U.S.C. 1334 from which prior approval is required;

F. Maintain surveillance over the operation and maintenance condition of the MS4 to ensure its safe and effective functioning; notify the deputy director for streets of any required maintenance and/or repair work;

G. Conduct an annual inspection of the MS4 and provide a written inspection report, including an assessment of the operational condition, safety, effectiveness and maintenance condition of the system, and a line item list of required special maintenance or repairs to the deputy director of streets;

H. Establish and implement a program to locate and eliminate illicit discharges and improper disposals to the MS4;

I. Establish and implement a program to prevent, contain and respond to spills that may discharge into MS4. This program shall be in conjunction with the fire department's haz-mat division;

J. Establish and implement a program to identify and control pollutants in stormwater discharges from any industrial or commercial facility that the stormwater administrator determines that is contributing a substantial pollutant loading to the MS4. (Ord. 14456 §§ 2—4, 2000; Ord. 13477 § 1 (part), 1998)

15.20.050 Duties and responsibilities of the director of the department of transportation.

The director of the department of transportation shall, to the extent that the following duties and responsibilities have not been delegated or assumed by another person, agency, department or entity pursuant to other ordinances adopted by the city:

A. Maintain and repair the MS4 to ensure its safety and operational capability;

B. Participate in the annual inspection of the MS4 conducted by the stormwater administrator and advise the stormwater administrator of any required maintenance, repairs or alterations to the system;

C. Prepare and submit to the stormwater administrator an annual schedule of maintenance and repair to the MS4;

D. Carry out the annual schedule of maintenance repair as approved by the stormwater administrator;

E. Immediately notify the stormwater administrator of any illicit discharges to the MS4. (Ord. 14456 § 5, 2000; Ord. 13477 § 1 (part), 1998)
(Ord. No. 17393, § 12, 8-24-2010, eff. 9-1-2010)

15.20.060 Abbreviations.

The following abbreviations when used in this chapter shall have the designated meanings:

BMP	best management practices
BTEX	benzene, toluene, ethylbenzene, and xylene
CFR	Code of Federal Regulations
EPA	U.S. Environmental Protection Agency

HHW	hazardous household waste
mg/l	milligrams per liter
MS4	municipal separate storm sewer system
NOI	notice of intent
NOT	notice of termination
NPDES	National Pollutant Discharge Elimination System
ppb	parts per billion
PST	petroleum storage tank
RPE	registered professional engineer
RQ	reportable quantity
SDPCP	storm drain pollution control plan
SWPPP	stormwater pollution prevention plan
TPH	total petroleum hydrocarbons
U.S.C	United States Code

(Ord. 13477 § 1 (part), 1998)

15.20.070 Definitions.

A. Generally. For the purpose of this chapter, the following words shall have the meaning set forth in this section.

B. Terms.

"Agricultural stormwater runoff" means any stormwater runoff from orchards, cultivated crops, pastures, range lands, and other non-point source agricultural activities, but not discharges from concentrated animal feeding operations as defined in 40 CFR Section 122.23 or discharges from concentrated aquatic animal production facilities as defined in 40 CFR Section 122.24.

"Best management practices (BMP)" means schedules of activities, prohibitions of practices, maintenance procedures, and other management practices to prevent or reduce the pollution of waters of the United States. BMPs also include treatment requirements, operating procedures, and practices to control plant site runoff, spillage or leaks, sludge or waste disposal, or drainage from raw material storage.

"City" means the City of El Paso, Texas, or the city council of El Paso.

"Coal pile runoff" means the rainfall runoff from or through any coal storage pile.

"Commencement of construction" means the disturbance of soils associated with or clearing, grading, or excavating activities or other construction activities.

Construction General Permit. See building code for definition.

"Discharge" means any addition or introduction of any pollutant, stormwater, or any other substance whatsoever into the municipal separate storm sewer system (MS4) or into waters of the United States.

"Discharger" means any person who causes, allows, permits, or is otherwise responsible for, a discharge, including, without limitation, any operator of a construction site or industrial facility.

"Domestic sewage" means human excrement, gray water (from home clothes washing, bathing, showers, dishwashing, and food preparation), other wastewater from household drains, and waterborne waste normally discharged from the sanitary conveniences free from industrial waste.

"Environmental Protection Agency (EPA)" means the United States Environmental Protection Agency, the regional office thereof, any federal department, agency, or commission that may succeed to the authority of the EPA, and any duly authorized official of EPA or such successor agency.

"Extremely hazardous substance" means any substance listed in the Appendices to 40 CFR Part 355, Emergency Planning and Notification.

"Facility" means any facility where there is or may be a discharge of stormwater associated with industrial activity.

"Fertilizer" means a solid or non-solid substance or compound that contains an essential plant nutrient element in a form available to plants and is used primarily for its essential plant nutrient element content in promoting or stimulating growth of a plant or improving the quality of a crop, or a mixture of two or more fertilizers. The term does not include the excreta of an animal,

plant remains, or a mixture of those substances, for which no claim of essential plant nutrients is made.

"Final stabilization" means the status when all soil disturbing activities at a site have been completed, and a uniform perennial vegetative cover with a density of seventy percent of the cover for unpaved areas and areas not covered by permanent structures has been established, or equivalent permanent stabilization measures (such as the use of rip-rap, gabions, or geotextiles) have been employed.

"Fire department" means the fire department of the city or any duly authorized representative thereof.

"Garbage" means putrescible animal and vegetable waste materials from the handling, preparation, cooking, or consumption of food, including waste materials from markets, storage facilities, and the handling and sale of produce and other food products.

"Harmful quantity" means, for purposes of this chapter, discharges of oil, motor fuel, or other petroleum products in such quantities that the stormwater administrator has determined may be harmful to the public health or welfare of the public or the environment include discharges of such products that are of sufficient quantity to:

a. Violate applicable water quality standards;

b. Cause a film or sheen upon or discoloration of the surface of the water or adjoining shorelines or cause a sludge or emulsion to be deposited beneath the surface of the water or upon adjoining shorelines;

c. Cause any damage to the MS4; or

d. Interfere with the operation of the MS4.

"Hazardous household waste (HHW)" means any material generated in a household (including single and multiple residences, hotels and motels, bunk houses, ranger stations, crew quarters, camp grounds, picnic grounds, and day use recreational areas) by a consumer which, except for the exclusion provided in 40 CFR Section 261.4(b)(1), would be classified as a hazardous waste under 40 CFR Part 261.

"Hazardous substance" means any substance listed in Table 302.4 of 40 CFR Part 302.

"Hazardous waste" means any substance identified or listed as a hazardous waste by the EPA in 40 CFR Part 261.

"Hazardous waste treatment, disposal, and recovery facility" means all contiguous land, and structures, other appurtenances and improvements on the land, used for the treatment, disposal, or recovery of hazardous waste.

"Herbicide" means a substance or mixture of substances used to destroy a plant or to inhibit plant growth.

"Industrial activity" means the categories of industries and activities identified in Section 122.26(6)(14) of Title 40, Code of Federal Regulations, as amended, including, without limitation, construction activity including clearing, grading and excavation activities (except for operations that result in the disturbance of less than five acres of total land area which are not part of a larger plan of development or sale).

"Industrial waste" means any waterborne liquid or solid substance that results from any process of industry, manufacturing, mining, production, trade, or business, including transportation related activities.

"Motor vehicle fluid" means any vehicle crankcase oil, antifreeze, transmission fluid, brake fluid, differential lubricant, gasoline, diesel fuel, gasoline/alcohol blend, and any other fluid used in a motor vehicle.

"Municipal landfill (or landfill)" means an area of land or an excavation in which municipal solid waste is placed for permanent disposal, and which is not a land treatment facility, a surface impoundment, an injection well, or a pile (as these terms are defined in regulations promulgated by the Texas Commission on Environmental Quality).

"Municipal separate storm sewer system (MS4)" means the system of conveyances (including roads with drainage systems, municipal streets, flood control dams, retention and detention basins, grate and/or curb inlets, curbs, gutters, ditches, man-made channels, arroyos, agriculture drains,

storm drains or designated flow paths) owned operated or controlled by the city and designed or used for collecting or conveying stormwater, and which is not used for collecting or conveying sewage.

"Municipal solid waste" means solid waste resulting from or incidental to municipal, community, commercial, institutional, or recreational activities, and includes garbage, rubbish, ashes, street cleanings, dead animals, abandoned automobiles, and other solid waste other than industrial waste.

"NPDES general permit for stormwater discharges associated with industrial activity (or industrial general permit)" means the industrial general permit issued by EPA on August 27, 1992, and published in Volume 57 of the Federal Register at page 41304 on September 9, 1992, and any subsequent modifications or amendments thereto.

"NPDES general permit for stormwater discharges from construction sites (or construction general permit)" means the construction general permit issued by EPA on August 27, 1992, and published in Volume 57 of the Federal Register at page 41217 on September 9, 1992, and any subsequent modifications or amendments thereto.

"NPDES permit" means a permit issued by EPA (or by the state under authority delegated pursuant to 33 U.S.C Section 1342 (b)) that authorizes the discharge of pollutants to waters of the United States, whether the permit is applicable on an individual, group, or general area-wide basis.

"Non-point source" means any source of any discharge of a pollutant that is not a "point source."

"Notice of intent (NOI)" means the notice of intent that is required by either the industrial general permit or the construction general permit.

"Notice of termination (NOT)" means the notice of termination that is required by either the industrial general permit or the construction general permit.

"Oil" means any kind of oil in any form, including, but not limited to petroleum, fuel oil, crude oil or any fraction thereof which is liquid at standard conditions of temperature and pressure, sludge, oil refuse, and oil mixed with waste.

"Operator" means the person or persons who, either individually or taken together, meet the following two criteria; (a) they have operational control over the facility specifications (including the ability to make modifications in specifications); and (b) they have the day-to-day operational control over those activities at the facility necessary to ensure compliance with pollution prevention requirements and any permit conditions.

"Owner" means the person who owns a facility or part of a facility or who has control over day-to-day activities.

"Person" means any individual, partnership, co-partnership, firm, company, corporation, association, joint stock company, trust, estate, governmental entity, or any other legal entity; or their legal representatives, agents, or assigns or person who has control over day to day activities. This definition includes all federal, state, and local governmental entities.

"Pesticide" means a substance or mixture of substances intended to prevent, destroy, repel, or mitigate any pest, or any substance or mixture of substances intended for use as a plant regulator, defoliant, or desiccant (as these terms are defined in Section 76.001 of the Texas Agriculture Code).

"Petroleum product" means a petroleum product that is obtained from distilling and processing crude oil and that is capable of being used as a fuel for the propulsion of a motor vehicle or aircraft, including motor gasoline, gasohol, other alcohol blended fuels, aviation gasoline, kerosene distillate fuel oil, and No. 1 and No. 2 diesel.

"Petroleum storage tank (PST)" means any one or combination of aboveground or underground storage tanks that contain petroleum products and any connecting underground pipes.

"Point source" means any discernible, confined, and discrete conveyance, including but not limited to, any pipe, ditch, channel, tunnel, conduit, well, discrete fissure, container, rolling stock, concentrated animal feeding operation, landfill leachate collection system, vessel or other floating craft from which pollutants are or may be dis-

charged. This term does not include return flows from irrigated agriculture or agricultural stormwater runoff.

"Pollutant" means dredged spoil, solid waste, incinerator residue, sewage, garbage, sewage sludge, munitions, chemical waste, biological materials, radioactive materials, heat, wrecked or discarded equipment, rock, sand, cellar dirt, and industrial, municipal, and agricultural waste discharged into water. The term "pollutant" does not include tail water or runoff water from irrigation or rainwater runoff from cultivated or uncultivated range land, pasture land, and farm land.

"Pollution" means the alteration of the physical, thermal, chemical, or biological quality of, or the contamination of, any water in the state that renders the water harmful, detrimental, or injurious to humans, animal life, vegetation, or property, or to the public health, safety, or welfare, or impairs the usefulness or the public enjoyment of the water for any lawful or reasonable purpose.

"Qualified personnel" means persons approved by the stormwater administrator who possess the appropriate competence, skills, and ability (as demonstrated by sufficient education, training, experience, and, when applicable, any required certification or licensing) to perform a specific activity in a timely and complete manner consistent with the applicable regulatory requirements and generally-accepted industry standards for such activity.

"Registered professional engineer (RPE)" means a person who has been duly licensed and registered by the State Board of Registration for Professional Engineers to engage in the practice of engineering in the State of Texas.

"Release" means any spilling, leaking, pumping, pouring, emitting, emptying, discharging, injecting, escaping, leaching, dumping, or disposing into the municipal separate storm sewer system (MS4) or the waters of the United States or onto the ground in such a manner that a pollutant may be discharged in the MS4.

"Reportable quantity (RQ)" means, for any "hazardous substance," the quantity established and listed in Table 302.4 of 40 CFR Part 302; for any "extremely hazardous substance," the quantity established in 40 CFR Part 355 and listed in Appendix A thereto.

"Rubbish" means nonputrescible solid waste, excluding ashes, that consist of:

a. Combustible waste materials, including paper, rags, cartons, wood, excelsior, furniture, rubber, plastics, yard trimmings, leaves, and similar materials; and

b. Noncombustible waste materials, including glass, crockery, tin cans, aluminum cans, metal furniture, and similar materials that do not burn at ordinary incinerator temperatures (one thousand six hundred to one thousand eight hundred degrees Fahrenheit).

"Sanitary sewer (or sewer)" means the system of pipes, conduits, and other conveyances which carry industrial waste and domestic sewage from residential dwellings, commercial buildings, industrial and manufacturing facilities, and institutions, whether treated or untreated, to the city sewage treatment plant (and to which stormwater, surface water, and groundwater are not intentionally admitted).

"Septic tank waste" means any domestic sewage removed from holding tanks such as vessels, chemical toilets, campers, trailers, and septic tanks.

"Service station" means any retail establishment engaged in the business of selling fuel for motor vehicles that is dispensed from stationary storage tanks.

"Sewage (or sanitary sewage)" means the domestic sewage and industrial waste that is discharged into the city sanitary sewer systems and passes through the sanitary sewer system to the city sewage treatment plant for treatment.

"Site" means the land or water area where any facility or activity is physically located or conducted, including adjacent land used in connection with the facility or activity.

"Solid waste" means any garbage, rubbish, refuse, sludge from a waste treatment plant, water supply treatment plant, or air pollution control facility, and other discarded material, including, solid, liquid, semisolid, or contained gaseous ma-

terial resulting from industrial, municipal, commercial, mining, and agricultural operations, from community and institutional activities, and material from transportation related activities.

"State" means the State of Texas.

"Storm drain pollution control plan (SDPCP)" means a plan required by either the construction general permit or the industrial general permit and which describes and ensures the implementation of practices that are to be used to reduce the pollutants in stormwater discharges associated with construction or other industrial activity at the facility.

"Stormwater" means stormwater runoff, snow melt runoff, and surface runoff and drainage.

"Stormwater discharge associated with industrial activity" means the discharge from any conveyance which is used for collecting and conveying stormwater and which is directly related to manufacturing, processing, or raw materials storage areas at an industrial plant which is within one of the categories of facilities listed in 40 CFR Section 122.26 (b) (14), and which is not excluded from EPA's definition of the same term.

Stormwater pollution prevention plan (SWPPP). See "storm drain pollution control plan (SDPCP)."

"Uncontaminated" means not containing a harmful quantity of any pollutant.

"Used oil (or used motor oil)" means any oil that has been refined from crude oil or a synthetic oil that, as a result of use, storage, or handling, has become unsuitable for its original purpose because of impurities or the loss of original properties but that may be suitable for further use and is recyclable in compliance with state and federal law.

"Water in the state (or water)" means any groundwater, percolating or otherwise, lakes, ponds, impounding reservoirs, springs, rivers, canals, streams, inside the territorial limits of the state, and all other bodies of surface water, natural or artificial, inland or coastal, fresh or salt, navigable or nonnavigable, and including the beds and banks of all watercourses and bodies of surface water, that are wholly or partially inside or bordering the state or inside the jurisdiction of the state.

"Water quality standard" means the designation of a body or segment of surface water in the state for desirable uses and the narrative and numerical criteria deemed by the state to be necessary to protect those uses, as specified in Chapter 307 of Title 31 of the Texas Administrative Code.

"Waters of the United States" means all waters which are currently used, were used in the past, or may be susceptible to use in interstate or foreign commerce including all waters which are subject to the ebb and flow of the tide; all interstate waters, including interstate wetlands; all other waters the use, degradation, or destruction of which would affect or could affect interstate or foreign commerce; all impoundments of waters otherwise defined as waters of the United States under this definition; all tributaries of waters identified in this definition; all wetlands adjacent to waters identified in this definition; and any waters within the federal definition of "waters of the United States": at 40 CFR Section 122.2; including the Rio Grande River, but not including any waste treatment systems, treatment ponds, or lagoons designed to meet the requirements of the federal Clean Water Act.

"Wetland" means an area that is inundated or saturated by surface water or groundwater at a frequency and duration sufficient to support, and that under normal circumstances does support, a prevalence of vegetation typically adapted for life in saturated soil conditions. Wetland generally include swamps, marshes, bogs, and similar areas.

"Yard waste" means leaves, grass clippings, yard and garden debris, and brush that results from landscaping maintenance and land-clearing operations. (Ord. 16822 § 1 (part), 2008; Ord. 13477 § 1 (part), 1998)

15.20.080 General prohibition.

A. No person shall introduce or cause to be introduced into the municipal separate storm sewer

system (MS4) or waters within the jurisdiction of the city any discharge that is not composed entirely of stormwater.

B. It is an affirmative defense to any enforcement action for violation of subsection A of this section that the discharge was composed entirely of one or more of the following categories of discharges:

1. A discharge authorized by, and in full compliance with, an NPDES permit (other than the NPDES permit for discharges from the MS4);

2. A discharge resulting from firefighting;

3. Agricultural stormwater runoff;

4. A discharge from water line flushing, but not including a discharge from water line disinfection by superchlorination or other means unless it contains no harmful quantity of chlorine or any other chemical used in line disinfection;

5. A discharge from lawn watering, landscape irrigation, or other irrigation water;

6. A discharge from a diverted stream flow or natural spring;

7. A discharge from uncontaminated pumped groundwater or rising groundwater;

8. Uncontaminated groundwater infiltration (as defined as 40 CFR Section 35.2005 (20)) to the MS4;

9. Uncontaminated discharge from a foundation drain, crawl space pump, footing drain or sump pump;

10. A discharge from a potable water source not containing any harmful substance or material from the cleaning or draining of a storage tank or other container;

11. A discharge from air conditioning condensation that is unmixed with water from a cooling tower, emissions scrubber, emissions filter, or any other source of pollutant;

12. A discharge from individual residential or charity car washing;

13. An uncontaminated discharge from riparian habitat or wetland;

14. A discharge from water used in street washing; provided, that the water is not contaminated with any harmful cleaning substance;

C. No affirmative defense shall be available under subsection B of this section if the discharge or flow in question has been determined by the city to be a source of a pollutant or pollutants to the waters of the United States or to the MS4, and written notice of such determination has been provided to the discharger. (Ord. 13477 § 1 (part), 1998)

15.20.090 Specific prohibitions and requirements.

A. The specific prohibitions and requirements in this section are within but do not limit the general prohibition of all the discharges prohibited by the general prohibition in Section 15.20.080.

B. No person shall introduce or cause to be introduced into the MS4 any discharge that causes or contributes to causing the city to violate a water quality standard, the city's NPDES permit, or any state-issued discharge permit for discharges from its MS4.

C. No person shall release or cause, allow, or permit to be introduced any of the following substances into the MS4 nor the waters within the jurisdiction of the city such that the substance may enter the air or groundwater:

1. Any used motor oil, antifreeze, or any other motor vehicle fluid;

2. Any industrial waste;

3. Any hazardous waste, including hazardous household waste;

4. Any domestic sewage or septic tank waste, grease trap waste, or grit trap waste;

5. Any wastewater from a commercial carwash facility; from any commercial vehicle washing, cleaning, or maintenance at any new or used automobile or other vehicle dealership, rental agency, body shop, repair shop, or maintenance facility;

6. Any wastewater from the commercial washing, cleaning, de-icing, or other maintenance of aircraft;

7. Any wastewater from a commercial mobile power washer or from the washing or other cleaning of building exterior where the wastewater contains any harmful cleaning substance;

8. Any wastewater from commercial floor, rug, or carpet cleaning;

9. Any wastewater from the washdown or other cleaning of pavement that contains any harmful quantity of any cleaning substance; or any wastewater from the washdown or other cleaning of any pavement where any spill, leak, or other release of oil, motor fuel, or other petroleum or hazardous substance has occurred, unless all harmful quantities of such released material have been previously removed;

10. Any effluent from a cooling tower, condenser, compressor, emissions scrubber, emissions filter, or the blowdown from a boiler;

11. Any ready-mixed concrete, mortar, ceramic, or asphalt base material or hydromulch material, or from the cleaning of commercial vehicles or equipment containing, or used in transporting or applying, such material;

12. Any filter backwash from a swimming pool, fountain, or spa;

13. Any swimming pool or spa water;

14. Any discharge from water line disinfection by superchlorination or other means if it contains any harmful quantity of chlorine or any other chemical used in line disinfection;

15. Any water from a water curtain in a spray room used for painting vehicles or equipment;

16. Any contaminated runoff from a vehicle wrecking yard;

17. Any substance or material that will damage, block, or clog the MS4;

18. Any release from a petroleum storage tank (PST), or any leachate or runoff from soil contaminated by a leaking PST, or any discharge of pumped, confined, or treated wastewater from the remediation of any such PST release, unless the discharge complies with all state and federal standards and requirements.

D. No person shall introduce or cause to be introduced into the MS4 or waters within the jurisdiction of the city any harmful quantity of sediment, silt, earth, soil, or other material associated with clearing, grading, excavation or other construction activities, or associated with landfilling or other placement or disposal of soil, rock, or other earth materials, in excess of what could be retained on site or captured by employing sediment and erosion control measures to the maximum extent practicable under prevailing circumstances.

E. No person shall connect a line conveying sanitary sewage, domestic or industrial, to the MS4, or allow such a connection to continue.

F. Regulation of Pesticides, Herbicides, and Fertilizers.

1. Any sale, distribution, application, labeling, manufacture, transportation, storage, or disposal of a pesticide, herbicide, or fertilizer must comply fully with all state and federal statutes and regulations including, without limitation, the Federal Insecticide, Fungicide, and Rodenticide Act (FIFRA) and all federal regulations promulgated pursuant to FIFRA; Chapters 63, 75, and 76 of the Texas Agriculture Code and all state regulations promulgated pursuant thereto; and any other state or federal requirement.

2. No person shall use or cause to be used any pesticide or herbicide contrary to any directions for use on any labeling required by state or federal statute or regulation.

3. No person shall dispose of, discard, store, or transport a pesticide, herbicide, or fertilizer, or a pesticide, herbicide, or fertilizer container, in a manner that the person knows, or reasonably should know, is likely to cause, or does cause, a harmful quantity of the pesticide, herbicide, or fertilizer to enter the MS4 or waters of the United States.

G. Used Oil Regulation.

1. No person shall:

a. Discharge used oil into the MS4 or a sewer, drainage system, septic tank, surface water, groundwater, or watercourse;

b. Knowingly mix or commingle used oil with solid waste that is to be disposed of in a landfill or knowingly directly dispose of used oil on land or in all landfill or knowingly discharge used oil onto the ground;

c. Introduce used oil into the environment by any method, including application of used oil to a road or land for dust suppression, weed abatement, or other similar use.

2. A retail dealer who annually sells directly to the public more than five hundred gallons of oil in containers for use off-premises shall post in a prominent place a sign provided by the state informing the public that improper disposal of used oil is prohibited by law. The sign shall prominently display the toll-free telephone number of the state used oil information center. (Ord. 13477 § 1 (part), 1998)

15.20.100 Release reporting and cleanup.

A. The operator of any facility, vehicle, or other source of any spilling, leaking, pumping, pouring, emitting, emptying, discharging, escaping, leaching, dumping, disposing, or any other release of any of the following quantities of any of the following substances that may flow, leach, enter, or otherwise be introduced into the MS4 or waters of the United States, shall telephone and notify the fire department and the city engineer or other designee of the city manager as soon as practicable concerning the incident:

1. An amount equal to or in excess of a reportable quantity of any hazardous substance, as established under 40 CFR Part 302;

2. An amount equal to or in excess of a reportable quantity of any extremely hazardous substance, as established under 40 CFR Part 355;

3. An amount of oil that either (a) violates applicable water quality standards, or (b) causes a film or discoloration of the surface of the water or an adjoining shoreline or causes a sludge or emulsion to be deposited beneath the surface of the water or upon an adjoining shoreline; or

4. Any harmful quantity of any pollutant.

B. The immediate notification required by subsection A of this section shall include the following information:

1. The identity or chemical name of the substance released, and whether the substance is an extremely hazardous substance;

2. The exact location of the release, including any known name of the waters involved or threatened and any other environmental media affected;

3. The time and duration (thus far) of the release;

4. An estimate of the quantity and concentration (if known) of the substance released;

5. The source of the release;

6. Any known or anticipated health risks associated with the release and, where appropriate, advice regarding medical attention that may be necessary for exposed individuals;

7. Any precautions that should be taken as a result of the release;

8. Any steps that have been taken to contain and clean up the released material and minimize its impacts; and

9. The names and telephone numbers of the person or persons to be contacted for further information.

C. Within fourteen days following such release, the operator of a facility, vehicle, or other source of the release shall submit a written report to the city engineer or other designee of the city manager containing each of the items of information specified above in subsection B of this section, as well as the following additional information:

1. The ultimate duration, concentration, and quantity of the release;

2. All actions taken to respond to contain, and clean up the released substances, and all precautions taken to minimize the impacts;

3. Any known or anticipated acute or chronic health risks associated with the release;

4. Where appropriate, advice regarding medical attention necessary for exposed individuals;

5. The identity of any governmental/private sector representatives responding to the release; and

6. The measures taken or to be taken by the responsible person(s) to prevent similar future occurrences.

D. Any release report require.d by a state or federal authority containing the information de-

scribed in subsections B and C of this section, shall be adequate to meet the reporting requirements of subsection C of this section upon submittal to the city.

E. The notifications required by subsections B and C of this section shall not relieve the responsible person of any expense, loss damage, or other liability which may be incurred as a result of the release, including any liability for damage to the city, to natural resources, or to any other person or property; nor shall such notification relieve the responsible person of any fine, penalty, or other liability which may be imposed pursuant to this chapter or to state or federal law.

F. Any person responsible for any release as described in subsection A of this section shall comply with all state, federal, and any other local law requiring reporting, cleanup, containment and any other appropriate remedial action in response to the release.

G. Any person responsible for a release described in subsection A of this section shall reimburse the city for any cost incurred by the city in responding to the release within thirty days of being invoiced by the city. (Ord. 13477 § 1 (part), 1998)

(Ord. No. 17393, § 13, 8-24-2010, eff. 9-1-2010; Ord. No. 17808, § 10, 6-5-2012, eff. 6-11-2012)

15.20.110 Stormwater discharge from construction activities.

A. General Requirements.

1. All operators of construction sites shall use the methodology on best management practices from the "stormwater quality best management practices for construction activities" manual. The city council may, by resolution, adopt a stormwater quality best management practices for construction activities manual.

2. Qualified personnel (provided by the operator of the construction site) shall inspect disturbed areas of any construction site that have not been finally stabilized, areas used for storage of materials that are exposed to precipitation, structural control measures, and locations where vehicles enter or exit the site, at least once a month and within twenty-four hours of the end of a storm that is 0.5 inches or greater. All erosion and sediment control measures and other identified best management practices shall be observed in order to ensure that they are operating correctly and are effective in preventing significant impacts to receiving waters and the MS4. Based on the results of the inspection, best management practices shall be revised as appropriate, and as soon as is practicable.

3. All plans and specifications that are prepared for the construction of site improvements shall include a storm drain pollution control plan (SDPCP), that illustrates and describes the best management practices required by subsection A.1. of this section that will be implemented at the construction site. The stormwater administrator may deny approval of any building permit, grading permit, subdivision plat, site development plan, or any other city approval necessary to commence or continue construction, or to assume occupancy, on the grounds that the management practices described in the plans or observed upon a site inspection by city personnel are determined not to control and reduce the discharge of sediment, silt, earth, soil, and other materials associated with clearing, grading, excavation, and other construction activities to the maximum extent practicable. Together with written notification to the applicant that the approval sought is denied, the stormwater administrator shall provide the applicant a written explanation of the reasons for the denial. The applicant may appeal the decision made by the stormwater administrator to the appeals officer, in accordance with Chapter 2.30 of the El Paso City Code. Any appeal shall be made within ten days of the date the applicant receives notification of the decision of the stormwater administrator.

4. No person shall do any clearing, grubbing, excavation or grading on a site prior to the stormwater administrator granting approval of the submitted SDPCP for such site.

B. Storm Drain Pollution Control Plan Standards. All SDPCP requirements shall be construed and established in accordance with the SDPCP standards.

C. Storm Drain Pollution Control Plan Requirements. All operators of sites of construction activity, including clearing, grading, and excavation activities, that result in the disturbance of five or more acres of total land area, or that are part of a common plan of development or sale within which five or more acres of total land area are disturbed, or who are required to obtain an NPDES permit for stormwater discharges associated with construction activity, shall comply with the following requirements:

1. Any operator who intends to obtain coverage for stormwater discharges from a construction site under the NPDES general permit for stormwater discharges from construction sites ("the construction general permit") shall submit a signed copy of its notice of intent (NOI) and a SDPCP to the city prior to the approval of any subdivision, building permit or grading permit. For stormwater discharges from construction sites where the operator changes, an NOI shall be submitted at least two days prior to when the operator commences work at the site.

2. All construction sites with construction activity resulting in the disturbance of five acres or more will be required to submit an SDPCP and an application fee. Individual lots that are part of a larger development of five acres or more will not be required to submit a SDPCP or the application fees; however, such individual lots will be required to comply with the requirements of the SDPCP of the larger development. The following provision shall apply to all construction sites with construction activity resulting in the disturbance of five acres or more:

a. A SDPCP shall be developed for each construction site. A single SDPCP may be prepared for different operators at the construction site for a more effective coordination of BMPs and cost sharing. Individual operators may develop separate SDPCPs that covers only their portion of the project, provided that reference is made of other operators of the site. The SDPCP shall be developed in accordance with good engineering practices. The plan shall identify potential sources of pollution which may reasonably be expected to affect the quality of stormwater discharges from the construction site. The SDPCP shall describe and ensure the implementation of practices which will be used to reduce pollutants in stormwater discharges from the construction site and to assure compliance with the permit.

b. A storm drain pollution control plan (SDPCP) shall be prepared and implemented in accordance with the requirements of the construction general permit or any individual or group NPDES permit issued for stormwater discharges from the construction site, and with any additional requirement imposed by or under this chapter and any other city ordinance.

c. The SDPCP shall be prepared, signed, and sealed by a registered professional engineer.

d. The SDPCP shall be completed prior to the submittal of plans to the city engineer. The SDPCP shall be updated and modified as appropriate and as required by the construction general permit and this chapter. Any update or modification to the SDPCP shall be prepared, signed, and sealed by a registered professional engineer, if the original SDPCP was required by subsection (C)(2) of this section, to have been prepared by a registered professional engineer.

e. The SDPCP shall be submitted to the stormwater administrator for review and approval prior to the commencement of any construction.

f. Upon the review by the director of the city development department or other designee of the city manager of the SDPCP or any site inspection that the director of the city development department or other designee of the city manager may conduct, the director of the city development department or other designee of the city manager may deny approval of any building permit, grading permit, subdivision plat, site development plan, or any other city approval necessary to commence or continue construction, or to assume occupancy, on the grounds that the SDPCP does not comply with the requirements of the construction general permit, any individual or group NPDES permit issued for stormwater discharge from the

construction site or any additional requirement imposed by or under this chapter. Also, if at any time the city engineer or other designee of the city manager determines that the SDPCP is not being fully implemented, the city may similarly deny approval of any building permit, grading permit, subdivision plat, site development plan or any other city approval necessary to commence or continue construction, or to assume occupancy, at the site.

g. All contractors and subcontractors identified in a SDPCP shall sign a copy of the following certification statement before conducting any professional service identified in the SDPCP:

> I certify under penalty of Law that I understand the terms and conditions of the National Pollutant Discharge Elimination System (NPDES) permit that authorizes the stormwater discharges associated with industrial activity from the construction site identified as part of this certification.

The certification must include the name and title of the person providing the signature; the name, address, and telephone number of the contracting firm; the address (or other identifying description) of the site; the date the certification is made.

h. The SDPCP, with the registered professional engineer's signature and seal affixed, and the certifications of contractors and subcontractors required by Section 15.20.130(C)(7), and with any modifications attached, shall be retained at the construction site from the date of commencement of construction through the date of final stabilization.

i. The operator shall make the SDPCP and any modification thereto available to the city upon request.

j. The city may notify the operator at any time that the SDPCP does not meet the requirements of the construction general permit, any applicable individual or group NPDES permit issued for stormwater discharges from the construction site, or any additional requirement imposed by or under this chapter. Such notification shall identify those provisions of the permit or chapter which are not being met by the SDPCP, and identify which provisions of the SDPCP require modifications in order to meet such requirements. Within seven days of such notification from the city (or as otherwise provided by the city), the operator shall make the required changes to the SDPCP and shall submit to the city a written certification that the requested changes have been made.

k. The operator shall amend the SDPCP whenever there is a change in design, construction, operation, or maintenance of the site, which has a significant effect on the potential for the discharge of pollutants to the potential for the discharge of pollutants to the MS4 or the waters of the United States, and which has not otherwise been addressed in the SDPCP, or if the SDPCP proves to be ineffective in eliminating or significantly minimizing pollutants, or in otherwise achieving the general objective of controlling pollutants in stormwater discharges associated with construction activity. In addition, the SDPCP shall be amended to identify any new contractor that will implement a measure in the SDPCP.

l. Qualified personnel (provided by the operator of the construction site) shall inspect disturbed areas of the construction site that have not been finally stabilized, areas used for storage of materials that are exposed to precipitation, structural control measures, and locations where vehicles enter or exit the site, at least once a month and within twenty-four hours of the end of a rainfall event that is 0.5 inches or greater. Disturbed areas and areas used for storage of materials that are exposed to precipitation shall be inspected for evidence of, or the potential for, pollutants entering the drainage system. Erosion and sediment control measures identified in the SDPCP shall be observed by the operator to ensure that they are operating correctly. Where discharge locations or points are accessible, they shall be inspected to ascertain whether erosion control measures are effective in preventing significant impacts to receiving waters or the MS4. Locations where vehi-

cles enter or exit the site shall be inspected for evidence of off-site sediment tracking on a daily basis.

m. Based on the results of the inspections required by subsection (C)(2)(l) of this section, the site description and the pollution prevention measures identified in the SDPCP shall be revised as appropriate, but in no case later than seven calendar days following the inspection. Such modifications shall provide for timely implementation of any changes to the SDPCP within seven calendar days following the inspection.

n. A report summarizing the scope of any inspection required by subsection (C)(2)(l) of this section, and the name(s) and qualifications of personnel making the inspection, the date(s) of the inspection, major observations relating to the implementation of the SDPCP, and actions taken in accordance with subsection (C)(2)(m) of this section shall be made and retained as part of the SDPCP for at least three years from the date that the site is finally stabilized. Such report shall identify any incidence of noncompliance. Where a report does not identify any incidence of noncompliance, the report shall contain a certification that the facility is in compliance with the SDPCP, the facility's NPDES permit, and this chapter. The report shall be certified and signed by the person responsible for making it.

o. The operator shall retain copies of any SDPCP and all reports required by this chapter or by the NPDES permit for the site, and records of all data used to complete the NOI, for a period of at least three years from the date that the site is finally stabilized.

p. Where a site has been finally stabilized and all stormwater discharges from construction activities that are authorized by this chapter and by the NPDES permit for those construction activities are eliminated, or where the operator of all stormwater discharges at a facility changes, the operator of the construction site shall submit to the city a notice of termination (NOT) that includes the information required for notices of termination by Part VIII of the construction general permit.

q. Upon final stabilization of the construction site, the owner (or the duly authorized representative thereof) shall submit written certification to the city that the site has been finally stabilized. (See definition of final stabilization in this chapter). The city may withhold an occupancy or use permit for any premises constructed on the site until such certification of final stabilization has been filed and the city has determined, following any appropriate inspection, that final stabilization has, in fact, occurred and that any required permanent structural controls have been completed. (Ord. 13477 § 1 (part), 1998)
(Ord. No. 17393, § 14, 8-24-2010, eff. 9-1-2010; Ord. No. 17743, § 1, 3-6-2012; Ord. No. 17808, § 11, 6-5-2012, eff. 6-11-2012; Ord. No. 019760, § 1, 7-22-2025)

15.20.120 Stormwater discharges associated with industrial activity.

A. All operators of facilities which are sources of stormwater discharges associated with industrial activity, other than construction activities covered by Section 15.20.110, shall comply with the following requirements:

1. Any operator who intends to obtain coverage for stormwater discharge associated with industrial activity under the NPDES general permit for stormwater discharges associated with industrial activity ("the industrial general permit") shall submit a signed copy of its notice of intent (NOI) to the city at least two days prior to the commencement of the industrial activity at the facility. If industrial activity is already underway upon the effective date of the ordinance codified in this chapter, the NOI shall be submitted within thirty days from the effective date of said ordinance. Where the operator of a facility with a stormwater discharge associated with industrial activity which is covered by the industrial general permit changes, the new operator of the facility shall submit an NOI at least two days prior to the change.

2. A storm drain pollution control plan (SDPCP) shall be prepared and implemented in accordance with the requirements of the indus-

trial general permit or any individual or group NPDES permit issued for stormwater discharge from the industrial facility, and with any additional requirement imposed by or under this chapter, and any other city ordinance.

3. The SDPCP shall be signed, and sealed by a registered professional engineer.

4. The SDPCP shall be completed prior to the submittal of the NOI to the city and, for a new industrial operation, prior to the commencement of the industrial activity at the facility. The SDPCP shall be updated and modified as appropriate and as required by the industrial general permit and this chapter. Any update or modification to the SDPCP shall be signed, and sealed by a registered professional engineer.

5. A copy of any NOI that is required by subsection (A)(1) of this section shall be submitted to the city in conjunction with any application for a permit or any other city approval necessary to commence or continue operation of the industrial facility.

6. An operator shall submit the SDPCP and any modifications thereto, to the city for review and approval prior to the commencement of any industrial activity at the facility.

7. Upon the city's review of the SDPCP and any site inspection that the stormwater administrator may conduct, the city may deny approval of any application for a permit or any other city approval necessary to commence or continue operation of the facility, on the grounds that the SDPCP does not comply with the requirements of the industrial general permit, any individual or group NPDES permit issued for stormwater discharges from the industrial facility, or any additional requirement imposed by or under this chapter. Also, if at any time the city determines that the SDPCP is not being fully implemented, the city may similarly deny approval of any application for a permit or other city approval necessary to commence or continue operation of the industrial facility.

8. Any modification to the SDPCP shall be signed, and sealed by a registered professional engineer, as required for the original SDPCP by subsection (A)(3) of this section.

9. The SDPCP with the registered professional engineer's signature and seal affixed, and with any modifications attached, shall be retained at the industrial facility from the date of commencement of operations until all stormwater discharges associated with industrial activity at the facility are eliminated and the required notice of termination (NOT) has been submitted.

10. The operator shall make the SDPCP and any modification thereto available to the city upon request.

11. The city may notify the operator at any time that the SDPCP does not meet the requirements of the industrial general permit, any applicable individual or group NPDES permit issued for stormwater discharges from the industrial facility, or any additional requirement imposed by or under this chapter. Such notification shall identify those provisions of the permit or chapter which are not being met by the SDPCP, and identify which provisions of the SDPCP require modifications in order to meet such requirements. Within thirty days of such notification, the operator shall make the required changes to the SDPCP and shall resubmit the SDPCP for review and approval.

12. The operator shall amend the SDPCP whenever there is a change in design, construction, operation, or maintenance of the site, which has a significant effect on the potential for the discharge of pollutants to the MS4 or to the waters of the United States, or if the SDPCP proves to be ineffective in eliminating or significantly minimizing pollutants, or in otherwise achieving the general objective of controlling pollutants in stormwater discharges associated with industrial activity.

13. Qualified personnel (provided by the operator) shall inspect equipment an areas of the facility specified in the SDPCP at appropriate intervals. A set of tracking or follow-up procedures

shall be used to ensure that appropriate actions are taken in response to the inspections. Records of inspection shall be maintained.

14. Qualified personnel (provided by the operator) shall conduct comprehensive site compliance evaluations as required by Part IV.D.4 of the industrial general permit or by any part of a group or individual permit at intervals of no less than once per year. Based on the results of the compliance evaluation, the description of potential pollutant sources and the pollution prevention measures and controls identified in the SDPCP shall be revised as appropriate within two weeks of such evaluation and shall provide for implementation of any changes to the SDPCP in a timely manner, but in no case more than twelve weeks after the compliance evaluation.

15. A report summarizing the scope of the comprehensive site compliance evaluation required by subsection (A)(14) of this section and shall contain: personnel making the compliance inspection, the date(s) of the inspection, major observations relating to the implementation of the SDPCP, and actions taken in accordance with necessary and appropriate plan revisions shall be made and retained as part of the SDPCP for at least three years after all stormwater discharges from the facility are eliminated and the required NOT has been submitted. The report shall identify any incidence of noncompliance; or, if the report does not identify any incidence of noncompliance, the report shall contain a certification that the facility is in compliance with the SDPCP, the applicable NPDES permit, and this chapter. The report shall be signed by the individual responsible for the comprehensive site compliance evaluation, and it shall be submitted to the city within ten days of its completion.

16. If the industrial facility is required by Part VI.B.2 of the industrial general permit or by any part of a group or individual permit to conduct semiannual monitoring, a signed copy of each semi-annual monitoring report prepared in accordance with Part VI.D. shall be submitted to the city.

17. If the industrial facility is required by Part VI.B.3 of the industrial general permit or by any part of a group or individual permit to conduct annual monitoring, records of the monitoring results shall be retained at the facility and made available to the city upon written request. If expressly required by the city, a written report of the annual monitoring shall be prepared and submitted to the city.

18. By written notice, the city may require any industrial facility identified in accordance with this section to implement a monitoring program that includes the submission of quantitative data on the following constituents: any pollutants limited in effluent guidelines subcategories, where applicable; any pollutant listed in an existing NPDES permit for the facility; oil and grease, COD, pH, BODs, TSS, total phosphorus, total Kjeldahi nitrogen, nitrate plus nitrite nitrogen, and any information on discharges required under 40 CFR 122.21 (g) (7) (iii) and (iv). The city may require written reports of any such monitoring to be submitted.

19. By written notice, the city may require any industrial facility identified in this section to conduct semiannual or annual monitoring of stormwater discharges, or the city may specify an alternative monitoring frequency and specify additional parameters to be analyzed. The city may require written reports of any such additional monitoring to be submitted.

20. The operator shall retain the SDPCP until at least one year after stormwater discharges associated with industrial activity at the facility are eliminated, or that operator is no longer operating the facility, and a notice of termination (NOT) in compliance with subsection (A)(23) of this section has been submitted. The operator shall retain all records of all monitoring information, copies of all required reports, and records of all data used to complete the NOI, until:

i. At least one year after all stormwater discharges associated with industrial activity at the facility are eliminated;

ii. The operator ceases to operate that facility, and the required notice of termination (NOT) has been submitted; or

iii. Six years from the date the record was produced or prepared, whichever event occurs first.

21. For discharges subject to the semiannual or annual monitoring requirements of Part VI.B. of the industrial general permit, in addition to the records-retention requirements of the paragraph above, operators are required to retain for a six-year period from the date of sample collection, records of all monitoring information collected. Operators must submit such monitoring results, and a summary thereof, to the city upon request.

22. Any discharge composed of coal pile runoff shall comply with the following limitations: no discharge shall exceed a maximum concentration for any time of fifty mg/l total suspended solids, nor shall such runoff be diluted with stormwater or other flows in order to meet this limitation; the pH of such discharges shall be within the range of 6.0 to 9.0. Any untreated overflow from facilities designed, constructed, and operated to treat the volume of coal pile runoff which is associated with a ten-year, twenty-four-hour rainfall event shall not be subject to the fifty mg/l limitation for total suspended solids.

23. Where all stormwater discharges associated with industrial activity that are authorized by this chapter, and by the NPDES permit for those discharges from industrial activities are eliminated, or where the operator of stormwater discharges associated with industrial activity at a facility changes, the operator of the facility shall submit to the city a notice of termination (NOT) that includes the information required for notices of termination by Part IX of the industrial general permit.

B. All operators of a facility with stormwater discharge associated with industrial activity not included in subsection A of this section, shall comply with all the requirements listed in subsection A of this section but with the following modifications:

1. The SDPCP shall be prepared and signed by a responsible corporate officer (as defined in the instructions for the NOI) or by such other person who is authorized to bind the operator. The signature shall constitute the attestation of the person signing and the operator that the SDPCP fully complies with the requirements of the industrial general permit, or with any individual or group NPDES permit issued for stormwater discharges from the industrial facility, and with any additional requirement imposed by or under this chapter. The SDPCP shall contain the name, title and business address of the person signing the SDPCP, and the date that the SDPCP was so signed.

2. Any significant modification to the SDPCP shall be prepared and signed by a person with authority to bind the operator.

3. The SDPCP, with the authorized signature, and with any modifications attached, shall be retained at the industrial facility from the date of commencement of operations until all stormwater discharges associated with the industrial activity at the facility are eliminated and the required NOT has been submitted.

It is an offense for any person required to possess a stormwater permit issued by the EPA to discharge stormwater to the MS4 unless the person possesses such stormwater permit and the stormwater permit is valid and current. No person required to possess a SDPCP by this chapter shall discharge stormwater to the MS4 unless the person possesses a valid and current SDPCP. (Ord. 13477 § 1 (part), 1998)

15.20.130 Application of SDPCP.

A. There shall be a processing fee of one hundred dollars for the review and approval of storm drain pollution control plans (SDPCP) as required by Sections 15.20.110 and 15.20.120.

B. Application fees for review and approval of SDPCP shall be in addition to other fees required by other ordinances. Resubmittal of SDPCP in accordance to Section 15.20.110(C) shall be accompanied with a new application form and fee.

C. Application Form Contents. Every application will contain the following information:

1. Address of site.
2. Legal description of property.
3. Property owner's name, address and phone.
4. Contractor's name, address and phone number, if applicable.
5. SDPCP prepares name, address and phone.
6. Start and end date on construction, if applicable.
7. Acreage of disturbed area. (Ord. 13477 § 1 (part), 1998)

15.20.140 Citizen participation.

Citizen Reports of Violations.

A. All citizens are encouraged to report to the city any spills, releases, illicit connections, other instances of anyone discharging pollutants, into the MS4 or waters of the United States, and any other violation of this chapter, of which they become aware.

B. The director of public works, designated in Section 15.20.070 as the administrator of this chapter, shall receive all such citizen reports by telephone, in writing, and in person. A written record of each citizen report will be prepared and kept on file for a period of three years, and a copy of the city's record of the report will be furnished to the reporting citizen upon request. Also upon request, the city will inform the reporting citizen of any action undertaken by the city in response to the citizen's report.

C. The city shall establish a toll-free telephone number for the reporting of such violations. The toll-free number shall be displayed at various locations throughout the city, as designated by the stormwater administrator. (Ord. 14456 § 6, 2000; Ord. 13477 § 1 (part), 1998)

15.20.150 Criminal penalty.

Any person violating any provision of this chapter shall be deemed guilty of misdemeanor and upon conviction thereof shall be fined a maximum amount of not more than two thousand dollars per violation. Each violation of a particular section of this chapter shall constitute a separate offense, and each day an offense continues shall be considered a new violation for purposes of enforcing this chapter. A culpable mental state is not required to prove an offense under this ordinance. (Ord. 13477 § 1 (part), 1998)

15.20.160 Authority to issue citations.

The following public officials are authorized to enforce the provisions of this chapter and shall have the power to issue Class C misdemeanor citations to any person violating the provisions of this chapter.

A. The stormwater administrator and environmental personnel under his supervision;

B. Any personnel authorized to issue Class C misdemeanor citations is authorized to issue citations for violations of this chapter. (Ord. 14456 §§ 7—9, 2000; Ord. 13477 § 1 (part), 1998)

Chapter 15.22

WATER AND WASTEWATER IMPACT FEES*

Sections:

15.22.010 Short title.

15.22.020 Purpose.

15.22.030 Authority.

15.22.040 Definitions.

15.22.050 Administration and accounting.

15.22.060 Land use assumptions and service area.

15.22.070 Capital improvements plan.

15.22.080 Impact fee service areas.

15.22.090 Impact fee schedules.

15.22.100 Maximum fee and actual fee to be assessed.

15.22.110 Time of assessment.

15.22.120 Re-assessment.

15.22.130 Time of collection.

15.22.140 Impact fee as condition of building permit approval or meter connection.

15.22.145 Affordability reduction or waiver.

15.22.150 Refund of fees.

15.22.160 Appeal process.

15.22.170 Certification of compliance.

15.22.180 Updates to plans and revision of fees.

15.22.190 Functions of advisory committee.

15.22.010 Short title.

This chapter and its subsequent codification shall be known and may be cited as the City of El Paso Impact Fee Ordinance.

***Editor's note**—Ord. No. 18130, § 3, adopted March 4, 2014, amended Ch. 15.22 in its entirety to read as herein set out. Former Ch. 15.22, §§ 15.22.010—15.22.190, pertained to similar subject matter, and derived from Ord. No. 17113, § 3, 5-12-2009. See the Ordinance List, and the Code Comparative Table and Disposition List, for subsequent amendatory legislation.

15.22.020 Purpose.

The purpose of this chapter is to assure the provision of adequate water and wastewater to serve new development in the city by requiring each new development to contribute payments towards its share of the costs of the facilities necessitated by and attributable to the new development.

15.22.030 Authority.

This chapter is adopted pursuant to V.T.C.A. Local Government Code ch. 395. The provisions of this chapter shall not be construed to limit the power of the city to utilize other methods authorized under state law or pursuant to other city powers to accomplish the purposes set forth herein, either in substitution or in conjunction with this chapter.

15.22.040 Definitions.

The following definitions apply to this chapter:

A. *Advisory committee.* The capital improvements advisory committee on water and wastewater impact fees designated and appointed by the city council in accordance with V.T.C.A. Local Government Code ch. 395.

B. *Capital improvement.* A water supply, treatment and distribution facilities or a wastewater collection and treatment facilities, with a life expectancy of three or more years, to be owned and operated by or on behalf of the city whether or not located in the service area.

C. *Capital improvements plan.* The plan adopted by the city, as may be amended from time to time, that identifies water and wastewater capital improvements or facility expansions and their associated costs which are necessitated by and attributable to new development and will be financed in whole or in part through water and wastewater impact fees imposed under this chapter.

D. *Facility expansion.* The expansion of the capacity of an existing facility that serves the same function as an otherwise necessary new capital improvement, in order that the existing facility

may serve new development. The term does not include the repair, maintenance, modernization, or expansion of an existing facility to better serve existing development.

E. *Impact fee.* A charge or assessment imposed by the city against new development in order to generate revenue for funding or recouping the costs of capital improvements or facility expansions necessitated by and attributable to the new development. The term includes amortized charges, lump-sum charges, capital recovery fees, contributions in aid of construction, and any other fee that functions as described by this definition to fund capital improvements in the capital improvements plan. The term does not include:

1. Dedication of land for public parks or payment in lieu of the dedication to serve park needs;

2. Dedication of rights-of-way or easements or construction or dedication of on-site or off-site water distribution, wastewater collection or drainage facilities, or streets, sidewalks, or curbs if the dedication or construction is required by a valid ordinance and is necessitated by and attributable to the new development;

3. Lot or acreage fees to be placed in trust funds for the purpose of reimbursing developers for oversizing or constructing water or sewer mains or lines; or

4. Other pro rata fees for reimbursement of water or wastewater mains or lines extended by the city.

However, an item included in the capital improvements plan may not be required to be constructed except in accordance with V.T.C.A. Local Government Code § 395.019(2), and an owner may not be required to construct or dedicate facilities and to pay impact fees for those facilities.

F. *Land use assumptions.* A description of the service area and projections of changes in land uses, densities, intensities, and population in the service area over at least a ten-year period as may be amended.

G. *New development.* The subdivision of land; the construction, reconstruction, redevelopment, conversion, structural alteration, relocation, or enlargement of any structure; or any use or extension of the use of land; any of which increases the number of service units and is located within a service area.

H. *Service area.* The area within the corporate boundaries or extraterritorial jurisdiction, as determined under V.T.C.A. Local Government Code Chapter 42, of the city to be served by the capital improvements or facilities expansions specified in the capital improvements plan. The service area does include all or part of the land within the city and its extraterritorial jurisdiction.

I. *Service unit.* A standardized measure of consumption, use, generation, or discharge attributable to an individual unit of development calculated in accordance with generally accepted engineering or planning standards and based on historical data and trends applicable to the city subdivision in which the individual unit of development is located during the previous ten years. For purposes of compliance with the impact fee statute and this chapter, a service unit represents the water and wastewater flows in gallons per day (gpd) for a single family residential or equivalent unit with a water meter smaller than one inch.

15.22.050 Administration and accounting.

A. The El Paso Water Utilities shall administer the provisions of this chapter. The El Paso Water Utilities shall establish adequate financial and accounting controls to ensure that impact fees disbursed from an account established under this section are utilized solely for the purpose authorized under V.T.C.A. Local Government Code Chapter 395.

B. *Accounts and funds.* All funds collected shall be deposited in interest-bearing accounts clearly identifying the category of capital improvements or facility expansions within the service area for which the impact fee was adopted. Interest earned on impact fee accounts are considered funds of the account on which it is earned. Impact fee funds, to include interest generated from impact fee accounts, may be spent only for the pur-

poses for which the impact fee was imposed as shown by the capital improvements plan and as otherwise authorized by V.T.C.A. Local Government Code Chapter 395. The records of the accounts into which impact fees are deposited shall be open for public inspection and copying during ordinary business hours.

C. The El Paso Water Utilities shall maintain and keep adequate financial records for each account to show the source and disbursement of all revenues, which shall account for all monies received and ensure that the disbursement of funds from each account shall be used solely and exclusive for the purposes for which the impact fee was imposed as shown by the capital improvements plan and as otherwise authorized by V.T.C.A. Local Government Code Chapter 395.

D. The El Paso Water Utilities shall ensure that any fee collected under the impact fee ordinance is expended within a reasonable period of time but not to exceed ten years from the date the fee is deposited into the impact fee account.

15.22.060 Land use assumptions and service area.

The land use assumptions (LUA) and service areas are those adopted by the El Paso City Council on May 7, 2024.
(Ord. No. 019626, § 2, 5-7-2024)

15.22.070 Capital improvements plan.

The capital improvements plan (CIP) is the plan adopted by the El Paso City Council on May 7, 2024.
(Ord. No. 019626, § 3, 5-7-2024)

15.22.080 Impact fee service areas.

The impact fee service areas are those adopted by the El Paso city council on March 24, 2009 as reflected in Appendix A. Three separate service areas have been established within the City of El Paso and its extraterritorial jurisdiction to be served by the capital improvements or facilities expansions specified in the capital improvements plan. Those service areas are the Westside Service Area, the Eastside Service Area, and the Northeast Service Area.

15.22.090 Impact fee schedules.

Appendix B contains the City of El Paso Impact Fee Assessment Schedule. For purposes of compliance with the impact fee statute, the City of El Paso has determined that a service unit represents the water and wastewater flows in gallons per day (gpd) for a single family residential or equivalent unit with a water meter smaller than one inch.

15.22.100 Maximum fee and actual fee to be assessed.

The maximum allowable impact fee per service unit was calculated in accordance with V.T.C.A. Local Government Code § 395.015. In accordance with V.T.C.A. Local Government Code § 395.014(7), the city has awarded a credit based on the maximum credit of fifty percent of the total projected cost of implementing the capital improvements plan. Ad valorem taxes will not be used for the payment of improvements contained in the capital improvements plan.

The impact fee to be assessed is the impact fee adopted by the city council.

WATER IMPACT FEE PER SERVICE UNIT

	Impact Fee (Before Credit)	Maximum Allowable Impact Fee	Impact Fee to be Assessed
Service Area			
Northeast	$10,023	$5,012	$1,508
Westside	$3,136	$1,568	$844
Eastside	$14,954	$7,477	$892

WASTEWATER IMPACT FEE PER SERVICE UNIT

	Impact Fee (Before Credit)	Maximum Allowable Impact Fee	Impact Fee to be Assessed
Service Area			
Northeast	$1,345	$672	$372
Westside	$3,379	$1,689	$1,187
Eastside	$21,008	$10,504	$1,178

(Ord. No. 019626, § 4, 5-7-2024)

15.22.110 Time of assessment.

A. An "assessment" means a determination of the amount of the impact fee in effect on the date or occurrence provided in this section and is the maximum amount that can be charged per service unit of such development. No specific act by the city is required.

B. For new development which is platted, or re-platted and there is an increase in the number of service units in the development, after the adoption of an impact fee, impact fees shall be assessed on the incremental increase in service units in the development before or at the time of recordation of a subdivision plat or replat in the official records of the county clerk of the county in which the tract is located.

C. For land on which new development occurs or is proposed to occur without platting, impact fees shall be assessed at the time an application for an individual meter connection to the city's water or wastewater system is filed.

15.22.120 Re-assessment.

Following the initial assessment of an impact fee, the amount of the impact fee per service unit for that development cannot be increased unless the approved final plat expires or lapses under the applicable ordinance or law, and service units increase or meter size is increased.

15.22.130 Time of collection.

A. For new development, which is platted in accordance with the provisions of Title 19 before the adoption of an impact fee, an impact fee may not be collected on any service unit for which a valid building permit is issued within one year after the date of adoption of the impact fee ordinance.

B. For new development which is platted, or re-platted and there is an increase in the number of service units after the adoption of impact fee ordinance and if water and/or wastewater capacity is currently available:

1. For land platted within the corporate boundaries of the city, impact fees shall be collected at the time a building permit is issued.

2. For land platted outside the corporate boundaries of the city, impact fees shall be collected at the time an application for an individual meter connection to the city's water or wastewater system is filed.

3. For land on which new development occurs or is proposed to occur without platting, impact fees shall be collected at the time an application is filed for an individual meter connection to the city's water or wastewater system.

4. If the city fails to collect the fee at the time specified above, the city has the option of collecting the fee at the time of connection to the water or wastewater system.

C. For new development which is platted, or re-platted and there is an increase in the number of service units, after the adoption of an impact fee and if water and wastewater capacity is not currently available:

1. Impact fees shall be collected, except as otherwise provided in this chapter, only if the collection is made to pay for a capital improvement or facility expansion that has been identified in the capital improvements plan and the city commits to commence construction of the identified capital improvement within two years, under duly awarded and executed contracts or commitments of staff time covering substantially all of the work required to provide service, and to have the service available within a reasonable period of time considering the type of capital improvement or facility expansion to be constructed, but in no event longer than five years; or

2. The city has entered into an agreement that the owner of a new development may construct or finance the capital improvements or facility expansions and agrees that the costs incurred or funds advanced will be credited against the impact fees otherwise due from the new development impact fees shall be collected.

15.22.140 Impact fee as condition of building permit approval or meter connection.

New development occurring in any of the defined service areas shall not be connected to the city's water or wastewater system without payment of an impact fee in accordance with the provisions of this chapter. No building permit shall be issued without payment of an impact fee in accordance with the provisions of this chapter. If impact fees have not been collected in accordance with the provision of the impact fee ordinance and the development has been connected to the water and/or wastewater system, the El Paso Water Utilities may disconnect the service per their "Rules and Regulations" until such time as the impact fees are paid.

15.22.145 Affordability reduction or waiver.

Notwithstanding Section 15.20.130 of this chapter, the city manager or designee shall administratively reduce or waive an impact fee for a service unit if the service unit once constructed, qualifies as affordable housing under 42 U.S.C. Section 12745, as amended. In addition to meeting the requirements of 42 U.S.C. Section 12745, the waiver or reduction must comply with the city's adopted fee waiver program established under the provisions of this section and will be subject to an affordability period established by the city and enforced by agreement, restrictive covenant, lien, or other binding obligation, as approved by the city attorney. However, if affordable housing as defined by 42 U.S.C. Section 12745, is not constructed, the city may reverse its decision to waive or reduce the impact fee, and may assess and collect an impact fee at any time during the development approval or building process or after the building process if an impact fee was not already assessed.

15.22.150 Refund of fees.

A. Refund if service denied or service not available.

1. On the request of an owner of the property on which an impact fee has been paid, the city shall refund the impact fee paid if:

a. Existing facilities are available and service is denied; or

b. The city has, after collecting the impact fee when service was not available, failed to commence construction within two years; or

c. Service is not available within a reasonable period considering the type of capital improve-

ment or facility expansion to be constructed, but in no event later than five years from the date of payment of the impact fee.

2. A request for a refund shall be submitted to the El Paso Water Utilities on a form provided for by the El Paso Water Utilities for such purpose.

3. Any refund shall bear interest calculated from the date of collection to the date of refund at the statutory rate as set forth in V.T.C.A. Finance Code § 302.002, or its successor statute.

B. Refund if funds not spent.

1. The city shall refund any impact fee or part of it that is not spent as authorized by this chapter within ten years after the date of payment.

2. All refunds shall be made to the record owner of the property at the time the refund is paid. However, if the impact fees were paid by another political subdivision or governmental entity, payment shall be made to the political subdivision or governmental entity.

3. Any refund shall bear interest calculated from the date of collection to the date of refund at the statutory rate as set forth in V.T.C.A. Finance Code § 302.002, or its successor statute.

4. For purposes of this section, an impact fee collected shall be considered expended if the total expenditures for capital improvements or facility expansions within a service area within ten years following the date of payment of the impact fee, equal or exceed the total impact fees collected within the service area for such improvements or facility expansions during such period.

15.22.160 Appeal process.

A. The property owner or applicant for a new development may appeal the following administrative decisions to the city manager or designee:

1. The applicability of an impact fee to the development or structure;

2. The amount of the impact fee assessed or collected;

3. Amount of a refund due.

15.22.170 Certification of compliance.

A. The city shall submit a written certification verifying compliance with this chapter to the attorney general each year not later than the last day of the city's fiscal year.

B. The certification must be signed by the mayor and include a statement that reads substantially similar to the following: "This statement certifies compliance with Chapter 395, Local Government Code."

15.22.180 Updates to plans and revision of fees.

A. The city shall update the land use assumptions and capital improvements plan at least every five years, commencing from the date of adoption of such plans, and shall, if necessary, recalculate the impact fees based thereon in accordance with the procedures of V.T.C.A. Local Government Code Chapter 395 or in any successor statute.

B. The city may review its land use assumptions, impact fees, capital improvements plan and other factors more frequently than provided in Subsection A above to determine whether the land use assumptions and capital improvements plan should be updated and the impact fees recalculated accordingly.

C. After conducting the review required in Subsection A above, the city council determines that no change to the land use assumptions, capital improvements plan or impact fee is needed at the time of an update under Subsection A above, the city council may dispense with the update in accordance with V.T.C.A. Local Government Code § 395.0575.

15.22.190 Functions of advisory committee.

The capital improvements advisory committee shall have those duties and responsibilities as established under Chapter 2.80 of the El Paso City Code and V.T.C.A. Local Government Code Chapter 395.

APPENDIX A
SERVICE AREAS

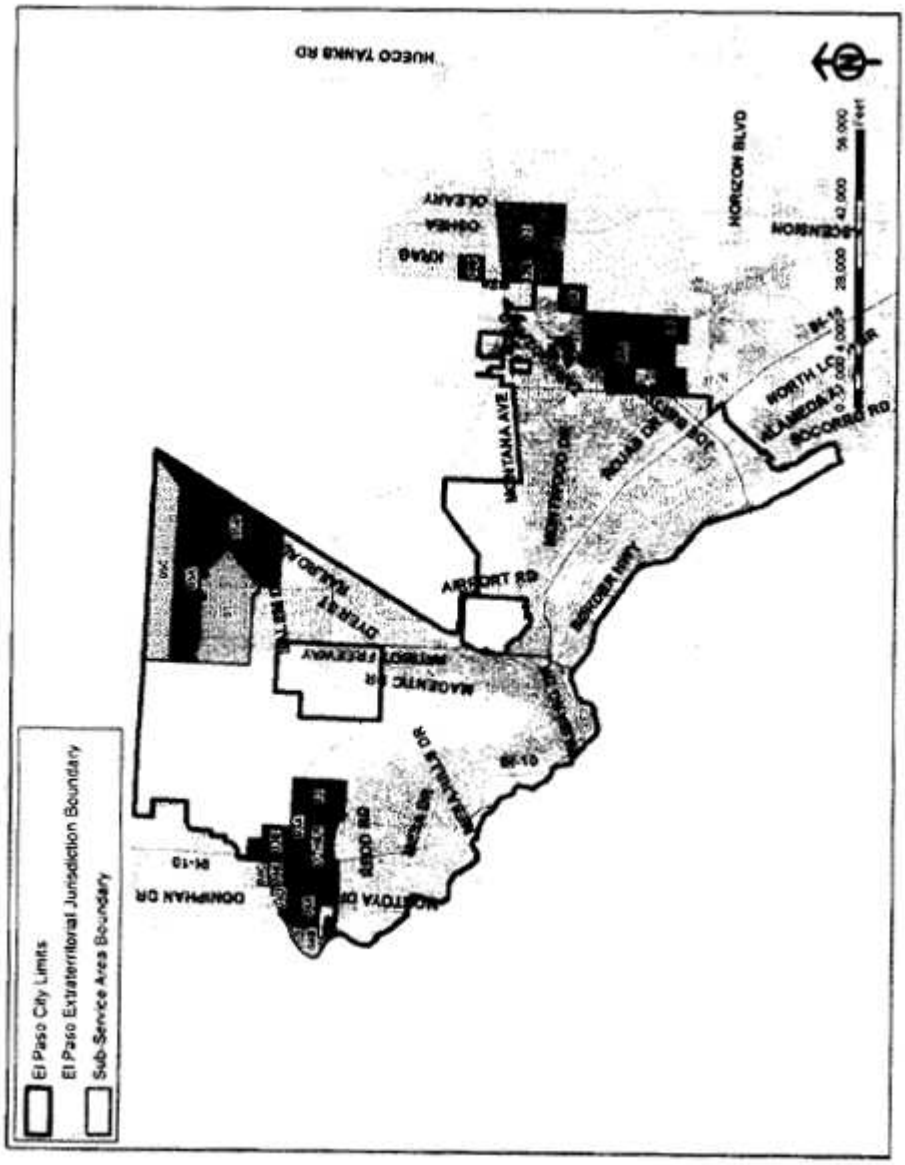

Figure A-1. City of El Paso Water and Sewer Impact Fee Service Area

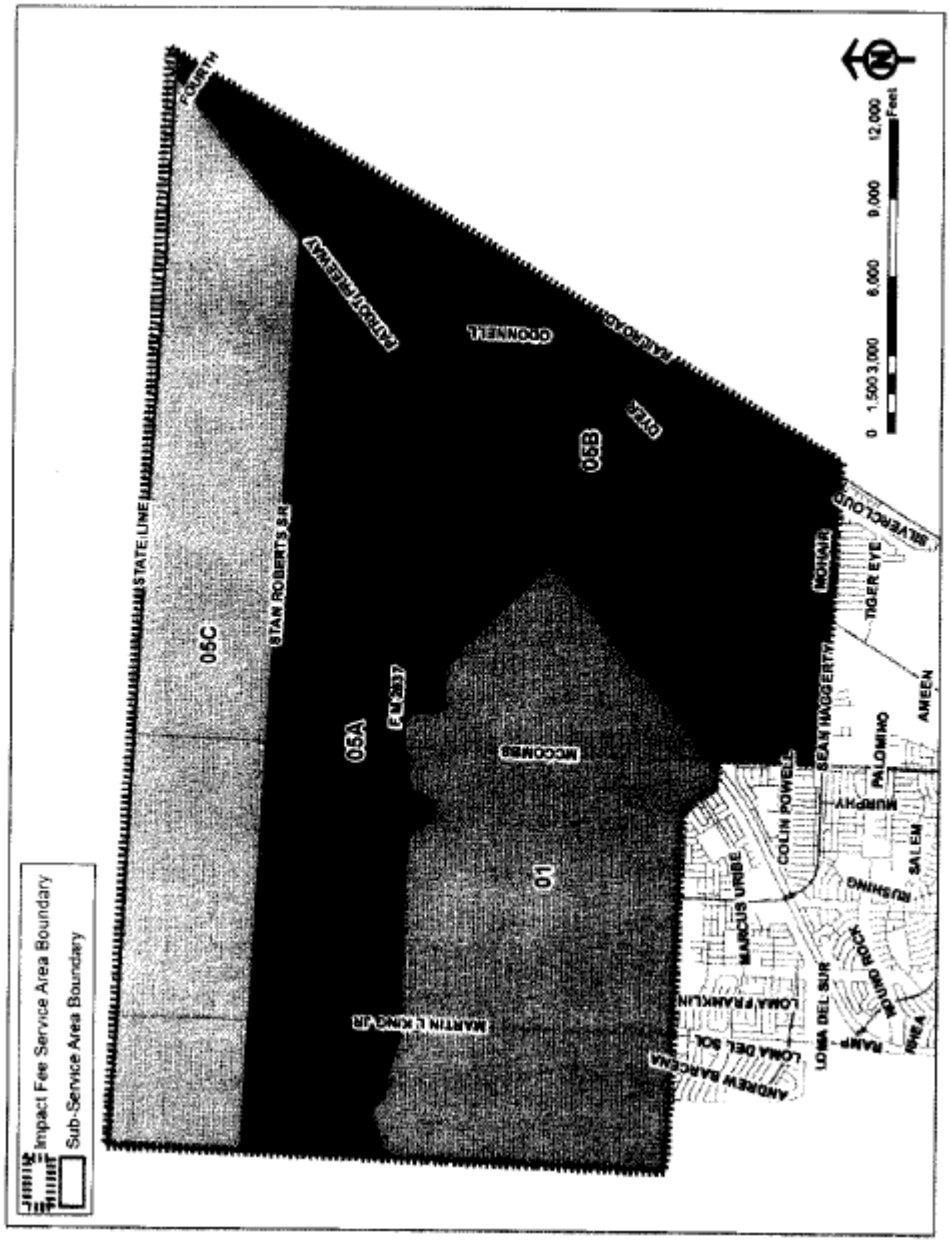

Figure A-2. Northeast Water and Sewer Impact Fee Service Area

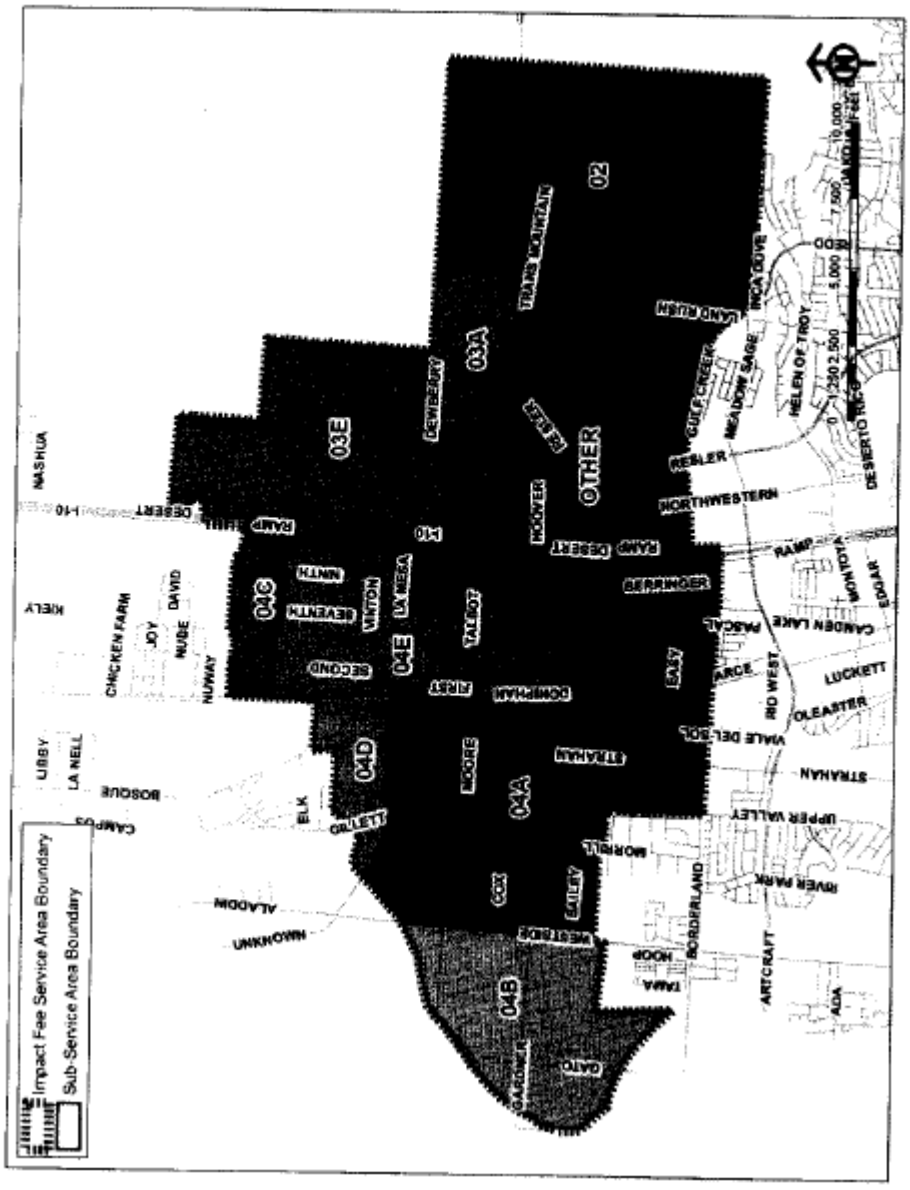

Figure A-3. Westside Water and Sewer Impact Fee Service Area

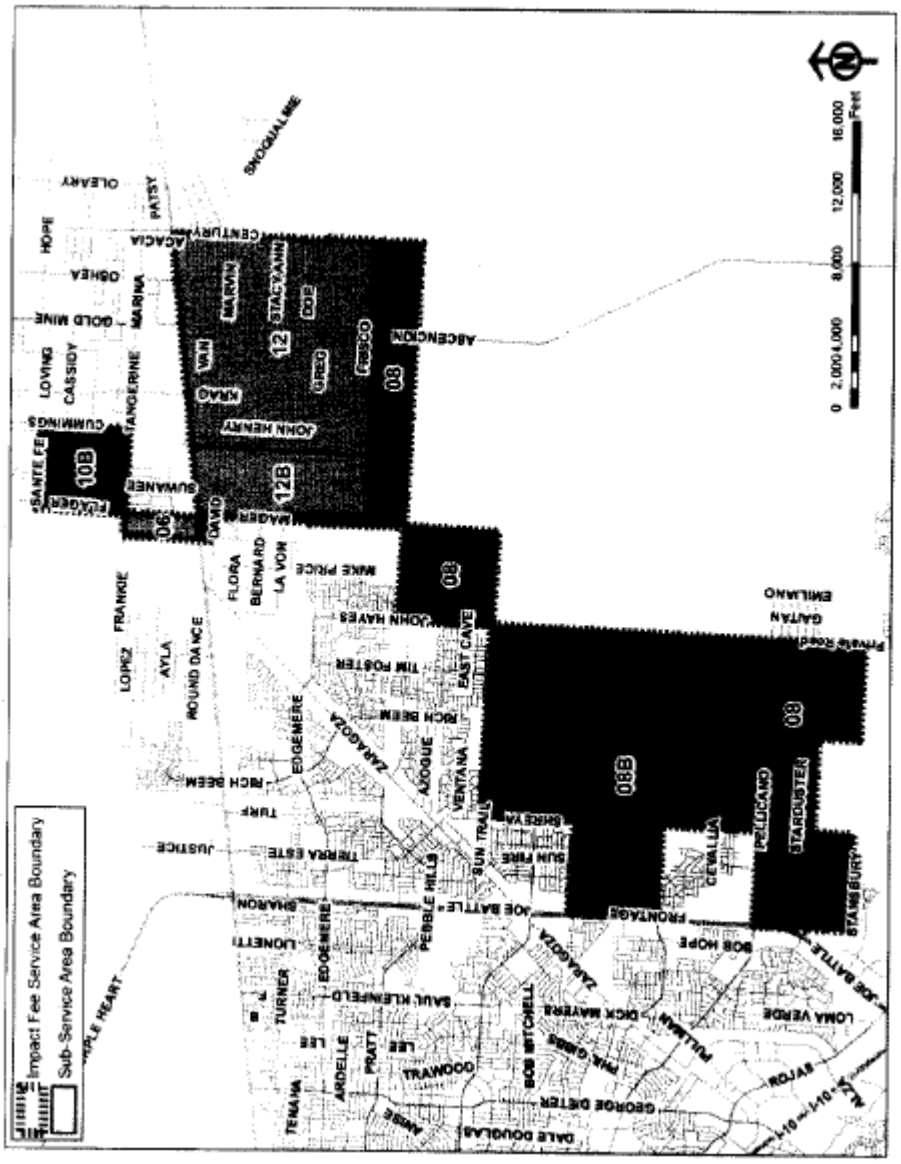

Figure A-4. Eastside Water and Sewer Impact Fee Service Area

APPENDIX B
IMPACT FEE ASSESSMENT SCHEDULES

Northeast Service Area			
Meter Size	**Meter Capacity Ratio**	**Water***	**Wastewater**
Less than 1 inch	1.00	$1,508	$372
1 inch	1.67	$2,518	$622
1½ inch	3.33	$5,019	$1,240
2 inch	5.33	$8,033	$1,985
3 inch	10.00	$15,072	$3,725
4 inch	16.67	$25,125	$6,209
6 inch	33.33	$50,235	$12,415
8 inch	53.33	$80,379	$19,864
10 inch	76.67	$115,557	$28,558
12 inch	143.33	$216,027	$53,388

* ***Fees do not apply to water meter or connections made for standby fire protection service.***

Westside Service Area			
Meter Size	**Meter Capacity Ratio**	**Water***	**Wastewater**
Less than 1 inch	1.00	$844	$1,187
1 inch	1.67	$1,409	$1,981
1½ inch	3.33	$2,810	$3,951
2 inch	5.33	$4,498	$6,324
3 inch	10.00	$8,439	$11,866
4 inch	16.67	$14,067	$19,780
6 inch	33.33	$28,125	$39,548
8 inch	53.33	$45,002	$63,279
10 inch	76.67	$64,698	$90,973
12 inch	143.33	$120,947	$170,070

* ***Fees do not apply to water meter or connections made for standby fire protection service.***

Eastside Service Area			
Meter Size	**Meter Capacity Ratio**	**Water***	**Wastewater**
Less than 1 inch	1.00	$892	$1,178
1 inch	1.67	$1,489	$1,967
1½ inch	3.33	$2,971	$3,923
2 inch	5.33	$4,754	$6,278
3 inch	10.00	$8,919	$11,780
4 inch	16.67	$14,867	$19,636
6 inch	33.33	$29,725	$39,260
8 inch	53.33	$47,562	$62,819
10 inch	76.67	$68,390	$90,317
12 inch	143.33	$127,850	$168,843

* ***Fees do not apply to water meter or connections made for standby fire protection service.***

(Ord. No. 019626, § 5, 5-7-2024)

Chapter 15.24

ACQUISITION, USE, AND DISPOSITION CITY PROPERTY

Sections:

15.24.010 General provisions.

15.24.020 Civil remedies.

15.24.030 Public forum.

15.24.010 General provisions.

A. Definitions. The following definitions apply to this chapter only.

1. "Applicant" means a person that submits an application under this chapter.

2. "City property" means real property, and improvements on real property, owned by the City of El Paso that is not (i) dedicated for public use as a park or public right-of-way, (ii) managed by the El Paso International Airport, (iii) managed by the El Paso Water Utilities, (iv) managed by other departments of the City of El Paso as specified in the El Paso City Code, ordinance, or resolution enacted by the El Paso City Council, and (v) managed by a third party pursuant to a contract with the City of El Paso.

3. "Person" means an individual, corporation, organization, government, or governmental subdivision or agency, business, trust, estate, partnership, association, utility, or any other legal entity.

4. "Policies" means any policies adopted by the real estate division as provided under this chapter.

5. "Real estate division" means the division or department within the City of El Paso that is responsible for handling real estate transactions for the City.

6. "Real estate transaction" any request by a person or applicant related to the use or purchase of city property.

7. "Right of entry" a temporary use of city property for the purpose of conducting surveys, measuring, testing, staging, parking, measuring, photographing, inspecting, mowing, general clean-up, and other due diligence purposes.

8. "Special event rental" means a temporary use of city property for private events.

B. Prohibition. No person will use or enter city property without acquiring rights under this chapter or without being authorized by a person that has acquired rights to the subject city property under this chapter. Notwithstanding anything to the contrary, no rights are deemed granted or acquired unless a person submits an application that complies with all requirements of this chapter and policies adopted by the real estate division, an application has been approved by the real estate division, an agreement has been signed by the city and the applicant, and the applicant has paid all required fees, consideration, due diligence, and other costs.

C. Agreement Requirements.

1. City manager, or designee, is authorized to sign any agreements approved by the city attorney's office as to form pertaining to special event rentals and rights of entry.

2. All real estate transactions must be accompanied by an agreement or document approved as to form by the city attorney's office. The city attorney's office may approve a standard form agreement for each type of transaction. Any agreements or documents by the city attorney's office must comply with the minimum requirements set forth in this chapter.

3. All grants of rights to use city property may be revoked by the city council if necessary to secure efficiency of public service at a reasonable rate, or to assure that the property is maintained in good order throughout the life of the grant.

D. Insurance.

1. All grants of rights to use city property must require insurance in the amounts that meet the minimum amounts established by the city's risk management division. The real estate division will include in the policies the minimum amounts established by the risk management division. The real estate division, in consultation with the risk

management division and the city attorney's office may require higher insurance amounts depending on the proposed activities that will take place on the city property.

E. Indemnification.

1. All grants of rights to use city property must require indemnification by the applicant in the manner determined by the city attorney's office.

F. Policies and Application Forms.

1. The real estate division will adopt policies and application forms for real estate transactions pertaining to city property. Such policies must be consistent with this chapter. The real estate division will process all applications in accordance with the policies adopted by the real estate division. The policies adopted by the real estate division provide guidelines for processing of real estate transactions and do not confer any rights to any person submitting an application for a real estate transaction. The real estate division may amend the policies as needed, provided that such amended policies comply with this chapter. The real estate division may deny applications if the real estate transaction is not in the best interest of the city or for any other reasons set forth in the policies.

G. Fees.

1. All applicants will pay a fee for a real estate transaction at the time of submitting an application under this chapter. The city council will set through the annual budget process the fees that an applicant is required to pay for a real estate transaction related to city property.

2. Payment of fees does not guarantee that a right will be granted under this chapter. The fees are assessed to recover the costs incurred by the city in reviewing an application.

3. Except as otherwise provided in this chapter, all fees are non-refundable.

4. No fees will be charged to third party contractors for any real estate transaction that is needed to complete a city project or that is related to the provision of services by a contractor hired by the city.

H. Consideration.

1. In addition to other charges under this chapter, all applicants will pay a consideration amount for a real estate transaction. The consideration amounts will be set by city council through the annual budget process, provided however, that consideration amounts may not be lower than the fair market value as determined by the methods established by the real estate division in the policies.

I. Due Diligence Costs.

1. In addition to other charges under this chapter, applicants may be required to pay any due diligence costs as determined by the real estate division. Due diligence costs will be set at the actual amounts charged by the contractors hired by the city. Applicants must pay due diligence costs in advance prior to the hiring of contractors by the city. Due diligence costs are non-refundable once the city is obligated to pay the contractor.

J. Other costs.

1. In addition to other charges under this chapter, applicants may be required to pay other costs for services related to the use of city property including but not limited to utilities, security, and traffic control as required under the policies.

K. No Guarantee. The payment of fees or other charges under this chapter does not guarantee any rights or act as a reservation of city property for certain dates. The real estate division may determine that a city property is not available or that it is not prudent for the city to enter into a particular real estate transaction.

L. No Waiver. The acquisition of city property under this chapter or the use of city property under this chapter does not relieve the person or applicant from complying with any other requirements under the El Paso City Code or other laws (local, state, or federal) including but not limited to building permit requirements, zoning requirements, platting requirements, environmental requirements, health and safety requirements, temporary use requirements, special event permit requirements, and noise ordinance requirements. The acquisition of city property under this chap-

ter or the use of city property under this chapter does not relieve the person or applicant from obtaining permits or licenses from other entities such as federal or state entities.

M. This chapter does not affect any rights granted prior to the enactment of this ordinance.
(Ord. No. 19276, § 1, 12-14-2021)

15.24.020 Civil remedies.

Nothing in this chapter limits the city's right to enforce any property rights or seek remedy under the law as it pertains to city property.
(Ord. No. 19276, § 1, 12-14-2021)

15.24.030 Public forum.

No Public Forum. No rental or use of a city property will constitute a designation of such facility as a public forum. Unless sponsored by the city, all events occurring on city property are considered private events.
(Ord. No. 19276, § 1, 12-14-2021)

Title 16

(RESERVED)

Title 17

HOUSING

Chapters:

17.04	**Housing Code Adopted**
17.08	**Lodginghouses, Tenement Houses, Hotels and Motels**
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Chapter 17.04

HOUSING CODE ADOPTED

Sections:

17.04.010 Adopted—Amendments.

17.04.020 Section 101.4 amended—Existing buildings.

17.04.030 Section 102.1 amended—Enforcement officer.

17.04.040 Section 103.1 amended—Right of entry.

17.04.050 Section 103.2.4 deleted—Unsafe residential buildings.

17.04.060 Section 106 deleted—Housing board of adjustments and appeals.

17.04.070 Section 107 amended—Appeals.

17.04.080 Section 108 amended—Violations and penalties.

17.04.090 Sections 302.5.2 and 302.5.3 deleted—Heating facilities.

17.04.120 Appendices not adopted.

17.04.010 Adopted—Amendments.

The book entitled "Standard Housing Code, 1985 Edition," and the 1987 revisions, a copy of which, authenticated by the signature of the mayor and the city clerk, is made a public record by resolution of the city council, and is on file in the city clerk's office, is adopted as the housing code of the city, as fully as if copied at length in this chapter, but with the changes set forth in this chapter. (Ord. 9358 § 1, 1988: prior code § 13-49 (part))

17.04.020 Section 101.4 amended—Existing buildings.

Section 101.4, existing buildings, of the Standard Housing Code is amended as follows:

101.4 - Existing Buildings.

101.4.1 Alterations, repairs or rehabilitation work may be made to any existing building without requiring the building to comply with all the requirements of this Code provided that the alteration, repair or rehabilitation work conforms to the requirements of this Code for new construction. The Housing Official shall determine, subject to appeal to the Board of Adjustments and Appeals identified in Section 18.08.090 of the El Paso City Code, the extent, if any, to which the existing building shall be made to conform to the requirements of this Code for new construction.

In addition, existing buildings governed by this Code shall comply with the requirements of Section 508 of the Standard Housing Code as amended under Ordinance No. 9107 (Requirements for Accessibility) passed and approved July 28, 1987. (Ord. 9358 § 2, 1988: prior code § 13-49(1))

17.04.030 Section 102.1 amended—Enforcement officer.

Section 102.1, enforcement officer, of the Standard Housing Code is amended as follows:

The provisions of this code shall be enforced by the building official of the City of El Paso. At any place in the standard housing code and this chapter that the terms "housing official" or "building official" are used, it shall be understood to mean the building official and shall have the same meaning as set forth in Section 18.02.101.4 of this code. (Ord. 16984 § 2, 2008: Ord. 13152 § 131, 1997; Ord. 9358 § 3, 1988: prior code § 13-49(2))

17.04.040 Section 103.1 amended—Right of entry.

Section 103.1, right of entry, of the Standard Housing Code is amended to read as follows:

Right of Entry. Whenever necessary to make an inspection to enforce any of the provisions of this code, or whenever the building official or his authorized representative has reasonable cause to believe that there exists in any building or upon any premises any condition

or code violation which makes such building or premises unsafe, dangerous or hazardous, the building official or his authorized representative may enter such building or premises at all reasonable times to inspect the same or to perform any duty imposed upon the building official by this code, provided that if such building or premises be occupied, he shall first present proper credentials and request entry; and if such building or premises be unoccupied, he shall first make a reasonable effort to locate the owner or other persons having charge or control of the building or premises and request entry. If such entry is refused, the building official or his authorized representative shall have recourse to every remedy provided by law to secure entry.

When the building official or his authorized representative shall have first obtained a proper inspection warrant or other remedy provided by law to secure entry, no owner or occupant or any other persons having charge, care or control of any building or premises shall fail or neglect, after proper request is made as herein provided, to promptly permit entry therein by the building official or his authorized representative for the purpose of inspection and examination pursuant to this code. (Ord. 16984 § 1 (part), 2008; Ord. 13152 § 132, 1997; Ord. 9358 § 4, 1988: prior code § 13-49(3))

17.04.050 Section 103.2.4 deleted—Unsafe residential buildings.

Section 103.2.4, unsafe residential buildings, of the Standard Housing Code is not adopted. (Ord. 9358 § 5, 1988: prior code § 13-49(4))

17.04.060 Section 106 deleted—Housing board of adjustments and appeals.

Section 106, housing board of adjustments and appeals, of the Standard Housing Code is not adopted. All references to the housing board of adjustments and appeals within this code are hereby deleted. (Ord. 9358 § 6, 1988: prior code § 13-49(5))

17.04.070 Section 107 amended—Appeals.

Section 107, appeals, of the Standard Housing Code is amended to read as follows:

A. Any person receiving written notice from the building official of structural deficiencies in his property under this Code may, within thirty days following the date of such notice, enter an appeal in writing to the appeals officer, depending upon the deficiencies for which the person received notice. Such appeal shall state the location of the property, the date of the notice of violations and the number of such notice. The appellant must state the variance or modification requested, the reasons therefor and the hardships or conditions upon which the appeal is made. A fee of twenty-five dollars shall accompany such notice of appeal.

Notices from the building official which address existing buildings and requirements for new construction, shall be appealed to the appeals officer, as identified in Chapter 2.30 of the El Paso City Code.

B. Upon appeal, the appeals officer will permit, in appropriate cases where the application of the requirement of this Code in the allowance of the stated time for the performance of any action required hereunder would appear to cause undue hardship on an owner, one or more extensions of time, not to exceed one hundred twenty days each, from the date of such decision of the appeals officer. Such requests for additional extensions of time shall be filed with the appeals officer not less than thirty days prior to the expiration of the current extension.

Upon appeal, the appeals officer shall consider and determine appeals whenever it is claimed that the true intent and meaning of this Code or any of its regulations have been misconstrued or wrongly interpreted.

C. An appeal should not be considered where an appeal case has been previously decided involving the same premises.

All decisions of the appeals officer to vary the application of any provision of this

Code or to modify an order of the building official shall specify in what manner such variance or modification is made, the conditions upon which it is made, and the reasons therefor. Every decision shall be in writing and shall indicate the vote upon the decision. A copy of all decisions shall be promptly filed in the office of the building official. The appeals officer shall notify the appellant in writing of the final action. (Ord. 16984 §§ 1 (part), 3, 2008: Ord. 13152 § 133, 1997; Ord. 9358 § 7, 1988: prior code § 13-49(6))

(Ord. No. 17389, § 1, 8-24-2010, eff. 9-1-2010; Ord. No. 019761, § 1, 7-22-2025)

17.04.080 Section 108 amended—Violations and penalties.

Section 108, violations and penalties, of the Standard Housing Code is changed to read:

Any person, firm, corporation or agent who shall violate a provision of this Code, or fail to comply therewith or with any of the requirements thereof, or who shall erect, construct, alter, demolish or move any structure, or has erected, constructed, altered, repaired, moved or demolished a building or structure in violation of this Code shall be deemed guilty of a misdemeanor and punished by a fine not exceeding Two Thousand Dollars ($2,000), and if the violation be continuing, each day's violation shall constitute a separate offense. (Ord. 9358 § 8, 1988: prior code § 13-49(7))

17.04.090 Sections 302.5.2 and 302.5.3 deleted—Heating facilities.

Section 302.5, heating facilities, of the Standard Housing Code is amended by deleting subsections 302.5.2 and 302.5.3, without substitution. (Ord. 9358 § 9, 1988: prior code § 13-49(8))

17.04.120 Appendices not adopted.

The appendices of the Standard Housing Code are not adopted, but are retained as administrative guidance aids. (Ord. 9358 § 10, 1988: prior code § 13-49(11))

Chapter 17.08

LODGINGHOUSES, TENEMENT HOUSES, HOTELS AND MOTELS

Sections:

Article I. General Provisions

17.08.010 Definitions.

Article III. Lodginghouses

17.08.120 License—Required—Term—Fee—Display.

17.08.130 License—Suspension and revocation.

17.08.140 Operation regulations.

17.08.150 Violation—Penalty.

Article V. Hotels, Tourist Courts and Motels

17.08.220 License—Required—Application—Fee.

17.08.230 License—Suspension or revocation.

17.08.240 Operation regulations.

17.08.250 Violation—Penalty.

Article I. General Provisions

17.08.010 Definitions.

A. As used in this chapter, the following terms mean:

1. "Hotel" means a building or part of a building, in which four or more rooms are offered as sleeping accommodations to transient persons for compensation.

2. "Lodginghouse" means any building or part of a building where four or more rooms, or eight or more beds, whichever accommodates the smaller number of persons, are offered at any one time as lodgings for compensation, whether with or without meals, except hotels, tourist courts and motels, and except light housekeeping rooms where bedclothes are not furnished.

3. "Lodginghouse for persons of unsound mind" means any place at which lodging is furnished to two or more persons of unsound mind, not members of the family of the person furnishing such lodging, whether or not the persons of unsound mind have been judicially determined to be such.

4. "Tourist court" or "motel" means a place at which sleeping accommodations in three or more cottages, rooms or separate buildings, with parking facilities on the same premises, or on other premises adjacent thereto, are offered for compensation for transients traveling by motor vehicle.

B. Definitions in subsections (A)(1) and (A)(5) of this section shall also include any other establishment (except a hospital) which offers sleeping accommodations for compensation, if it uses in its name or advertising the words "hotel," "motel," "tourist court," "tourist rooms" or other words of similar meanings reasonably indicating that it solicits transient trade.

Definitions in subsections (A)(1) and (A)(5) of this section do not include or apply to trailer courts, lodginghouses, or similar places which are otherwise defined herein or regulated by other ordinances, and such other ordinances are kept in effect; provided, places which fall within the definition of a hotel as set forth in this section or use the word "hotel" as set forth in subsection A of this section shall be covered by such definition and regulations thereof and not by the lodginghouse definition contained in subsection (A)(2) of this section or the regulations thereof although they fall within the definition of lodginghouse also. (Ord. 8593 § 2, 1986; prior code § 13-2)

Article III. Lodginghouses

17.08.120 License—Required—Term—Fee—Display.

A. No person shall operate a lodginghouse without a license as provided in this article. Applications for such license shall be made to the city license collector in writing, stating:

1. The name and residence address of the operator of the business, of all partners if a partnership, and of all officers if a corporation;

2. The name under which and the address at which the lodginghouse is to be operated; and

3. The kind and number of accommodations offered.

B. Licenses shall be issued for one year, and may be renewed from year to year without refiling the application.

C. The fee for the license shall be forty-five dollars per year, payable in advance. This fee is not levied for revenue, but to pay a part of the cost of regulation under the police power, and the city council finds that the fee bears a reasonable relation to such costs.

D. The operator shall immediately give written notice to the license collector of any change in the facts stated in the application.

E. The license collector shall inform the director of the city-county health unit and the chief of the fire department of all original licenses issued, and all cancellations, suspensions or expirations.

F. The license shall be kept posted on the premises in a place where it will be readily visible to persons seeking accommodations. (Ord. 15752 § 1, 2004: Ord. 12118 § 1, 1994; Ord. 9000 § 1, 1987; prior code § 13-9)

17.08.130 License—Suspension and revocation.

The director of the city-county health unit may, after reasonable notice and opportunity to be heard, revoke or suspend any license issued under this article, for failure of the owner, operator, manager or caretaker to comply or to see that his servants comply with any requirement of Sections 17.08.120 and 17.08.140. The licensee may appeal from such revocation or suspension to the sanitation board of the city by giving to the director of the city-county health unit written notice of appeal; and in such case the board shall, after reasonable notice to the director and to the licensee, hear the case and affirm, rescind or modify the order. If such appeal is taken the director's order shall not be enforced pending action by the board. (Prior code § 13-10)

17.08.140 Operation regulations.

Every lodginghouse shall be operated in accordance with the following regulations:

A. One shower or tub, one lavatory and one commode, shall be provided for each ten sleeping rooms or fraction thereto (or each sixteen persons, if accommodations for more than one person are provided in one room) for the free use of lodgers at all times.

B. An adequate supply of clean individual towels shall be provided for lodgers free of charge.

C. Lodginghouses and all furnishings, fittings, fixtures and plumbing therein shall be maintained in a clean condition and shall at no time become a public or private nuisance and shall comply with the plumbing, building, electrical, garbage and all other ordinances of the city and laws of the state for the protection of public health or safety.

D. All floors shall be sprinkled and swept once a day.

E. Beds shall be at least two feet apart in a horizontal direction and so arranged that the air shall circulate freely under and around each bed. Except where air conditioning is provided, all windows shall be open at least three hours each day; at least ten square feet of window space, having unobstructed access to the open air, shall be provided for each room and for each one hundred square feet of floor space; and at least one-half of each window space will be available for ventilation.

F. All beds, bedclothing, mattresses and pillows shall be kept free from vermin.

G. Each bed shall be provided with a pillow slip for each pillow and two white linen or cotton sheets ninety-nine inches long after being washed, and sufficiently wide to cover the mattress and springs. Sheets and pillow slips shall be changed every eight days, and for each new guest or occupant.

H. Partitions and ceilings, whether put in before or after the effective date of the building code of the city, shall conform to the type of construction of the building, as classified in such code with reference to fire protection, but in no case are

combustible partitions or ceilings permitted, except that in a building of ordinary construction partitions may be two by four inch stud walls covered on both sides with metal or gypsum lath and three-fourths of an inch of gypsum plaster, and ceilings may be metal or gypsum lath and three-fourths of an inch of gypsum plaster, or better. All partitions throughout their entire length shall extend from the floor to the ceiling. Provided, however, in cases of construction done within the then city prior to May 20, 1936, and in cases of construction done in areas annexed since such date where the construction was completed prior to annexation, this provision shall not apply to open beam ceilings of wooden deck construction nor to ceilings constructed of noncombustible material. (Prior code § 13-11)

17.08.150 Violation—Penalty.

A. Any person who shall operate a lodginghouse before obtaining a license as required in this article, or after such license has been revoked, or while it is suspended, shall be deemed guilty of a misdemeanor and punished by a fine as provided in Sections 1.08.010 through 1.08.030. Each day's operation shall constitute a separate offense.

B. Any owner, operator, manager or caretaker of a lodginghouse who shall fail to comply with any of the requirements of Sections 17.08.120 and 17.08.140 shall be deemed guilty of a misdemeanor and punished by a fine as provided in Sections 1.08.010 through 1.08.030. Each day's violation shall constitute a separate offense. (Prior code § 13-12)

Article V. Hotels, Tourist Courts and Motels

17.08.220 License—Required—Application—Fee.

A. No person shall operate a hotel, tourist court or motel without a license as provided in this article. Application for such license shall be made to the permit official in writing, stating:

1. The name and residence address of the operator of the business, of all partners if a partnership, and of all officers if a corporation;

2. The name under which and the address at which the lodginghouse is to be operated; and

3. The kind and number of accommodations offered.

B. Licenses shall be issued for one year, and may be renewed from year to year without refiling the application.

C. A fee for a license under this section is established and the established fee shall be payable in advance.

D. The operator shall immediately give written notice to the permit official of any change in the facts stated in the application.

E. The permit official shall inform the director of department of public health and the chief of the fire department of all original licenses issued, and all cancellations, suspensions or expirations.

F. The license shall be kept posted on the premises in a place where it will be readily visible to persons seeking accommodations (Ord. 16984 § 4, 2008: Ord. 15752 § 2, 2004: Ord. 12118 § 2, 1994; Ord. 9000 § 2, 1987; prior code § 13-19)
(Ord. No. 17389, § 2, 8-24-2010, 9-1-2010)

17.08.230 License—Suspension or revocation.

The director of the city-county health unit may, after reasonable notice and opportunity to be heard, revoke or suspend any license issued under this article, for failure of the owner, operator, manager or caretaker to comply or to see that his servants comply with any requirement of Sections 17.08.220 and 17.08.240. The licensee may appeal from such revocation or suspension to the sanitation board of the city by giving to the director of the city-county health unit written notice of appeal; and in such case the board shall, after reasonable notice to the director and to the licensee, hear the case and affirm, rescind or modify the order. If such appeal is taken the director's order shall not be enforced pending action by the board. (Prior code § 13-20)

17.08.240 Operation regulations.

Every hotel, tourist court or motel shall be operated in accordance with the following regulations:

A. A manager or caretaker shall be provided, to reside on the premises and to be responsible for the cleanliness, sanitation and safety of the premises, and for compliance with applicable regulations in this title and Chapter 2.64. B. At least one bath or shower and one lavatory, with hot and cold running water, and one flush toilet, shall be provided for every four sleeping rooms, and shall be accessible to the persons for whose use it is intended by an entrance independent of any inhabited room except that of the user. Plumbing shall be connected with the public sewer system, or sewage otherwise disposed of according to law if a connection with a public sewer is not available.

C. An adequate supply of potable drinking water shall be provided.

D. All rooms occupied by guests shall be screened so as reasonably to exclude flies and mosquitoes, and shall be provided with artificial light and heat when needed. Rooms and furnishings shall be kept clean, and free of insects and vermin.

E. Each bed shall be provided with a pillow slip for each pillow and with two white linen or white cotton sheets, at least ninety-nine inches long after shrinkage, and of sufficient width to cover the mattress and spring. Pillow slips and sheets shall be laundered before supplying to each guest. Any guest remaining longer than one week shall be supplied with clean pillow slips and sheets each week. An adequate supply of clean individual towels shall be provided.

F. The premises shall be so maintained and operated as not to constitute a public or private nuisance; and all structures and operations shall be in compliance with the plumbing, building and electrical codes and the garbage ordinances and provisions of this code and all other laws and ordinances for the protection of the public health and safety.

G. Partitions and ceilings, whether put in before or after the effective date of the building code of the city, shall conform to the type of construction of the building as classified in such code with reference to fire protection; but in no case are combustible partitions or ceilings permitted, except that in a building of ordinary construction partitions may be two by four inch stud walls covered on both sides with metal or gypsum lath and three-fourths of an inch of gypsum plaster, and ceilings may be metal or gypsum lath and three-fourths of an inch of gypsum plaster, or better. All partitions throughout their entire length shall extend from the floor to the ceiling. Provided, however, in cases of construction done within the then city limits prior to May 20, 1936, and in cases of construction done in areas annexed since such date where the construction was completed prior to annexation, this provision shall not apply to open beam ceilings of wooden deck construction, nor to ceilings constructed of noncombustible material. (Prior code § 13-21)

17.08.250 Violation—Penalty.

A. Any person who shall operate a hotel, tourist court or motel before obtaining a license as provided in this article, or after such license has been revoked, or while it is suspended, shall be deemed guilty of a misdemeanor and punished by a fine as provided in Sections 1.08.010 through 1.08.030. Each day's operation shall constitute a separate offense.

B. Any owner, operator, manager or caretaker of a hotel, tourist court or motel who shall fail to comply with any of the requirements of Sections 17.08.220 and 17.08.240 shall be deemed guilty of a misdemeanor and punished as provided in Sections 1.08.010 through 1.08.030. Each day's violation shall constitute a separate offense.

C. Any person, including any owner, or operator, manager or caretaker of a lodginghouse for persons of unsound mind who shall operate such lodginghouse without a permit from the director of the city-county health district or who shall otherwise fail to comply with the requirements of

Article IV of this chapter shall be deemed guilty of a misdemeanor and punished by a fine not to exceed five hundred dollars. Each day's operation shall constitute a separate offense. (Ord. 10975 § 5, 1992; Prior code § 13-22)

Chapter 17.12

TRAILER COURTS

Sections:

17.12.010 Definitions.

17.12.020 License—Required.

17.12.030 License—Procedure for obtaining.

17.12.040 License—Fee.

17.12.050 License—Renewal.

17.12.060 License—Revocation.

17.12.070 Driveways—Water supply—Sewage disposal—Garbage removal.

17.12.080 Parking.

17.12.090 Toilet, bathing and laundry facilities—Building lighting.

17.12.100 Management—Office required—Recordkeeping.

17.12.110 Rules and regulations.

17.12.120 Parking trailers outside courts.

17.12.130 Inspection.

17.12.135 Correction and re-inspection.

17.12.140 Enforcement.

17.12.150 Violation—Penalty.

17.12.010 Definitions.

As used in this chapter the following terms shall mean:

A. "Approved" means approved in accordance with the requirements of any applicable ordinance; or, if there are no such ordinance requirements, then approved by the appropriate inspection department of the city as being in compliance with generally accepted standards of safety.

B. "Hard-surfaced" means paved with concrete, asphalt, chat, or equal paving material.

C. "House trailer" means any vehicle or structure so designed and constructed as to permit occupancy thereof as living quarters for one or more persons, or the conduct of any business, profession, occupation or trade, and so designed that it is or may be mounted on wheels and capable of traveling on streets or highways, whether propelled or drawn by its own or other motive power. The term does not include a vehicle used merely for the transportation of property; or a vehicle, such as a passenger automobile, used for the transportation of persons and not equipped or designed as living quarters or as an office or shop; or a vehicle moved only on fixed rails or tracks. A housetrailer shall still be deemed to be a trailer although its wheels have been removed permanently or temporarily, or it is mounted on blocks, bricks or other foundation.

D. "Trailer court" means a lot, tract, or parcel of land (including buildings and facilities thereon) where parking facilities and accommodations are provided, with or without compensation, for one or more housetrailers when such trailers are being used for habitation or other purposes within the definition of housetrailer.

E. "Unit" means the spaces reserved for parking a housetrailer in a trailer court; or any vehicle, building or structure used as sleeping or living quarters in a trailer court, according to the context. (Prior code § 13-23)

17.12.020 License—Required.

No person shall establish, maintain or operate a trailer court within the city without having a license as provided in this chapter. (Prior code § 13-24)

17.12.030 License—Procedure for obtaining.

A. The applicant for the license required in Section 17.12.020 shall submit to the permit official two copies of plans for the proposed trailer court. The plans shall be drawn to scale, in sufficient detail to show compliance with all applicable ordinances, and shall show all driveways and locations for the parking of house trailers, all buildings, sanitary conveniences, sewer disposal methods, drainage and utility installations. The plans shall be subject to the approval of all city departments concerned as in the case of other building permits.

Provided, submission and approval of such plans shall not be required in connection with the

application for a license for any trailer court which was already lawfully in operation on the effective date of Ordinance No. 1518, passed and approved on May 3, 1956, and so continues in operation, but if changes in the design of such existing court be made in the future, the plans for such changes shall be submitted and subject to approval.

B. After approval of the plan the applicant shall apply to the permit official for a license. The permit official may provide forms for the application, showing the name of the owner of the trailer court, the address to which notices may be sent, the location of the trailer court, and other information reasonably necessary to the enforcement of this chapter. The application shall be accompanied by payment of one-fourth of the annual established license fee for each three months or part thereof between the date the license is issued and the next March thirty-first.

C. The license shall not be valid until a certificate of occupancy has been issued as required by the building code. (Ord. 16984 § 5, 2008: prior code § 13-25)
(Ord. 17159, § 1, 8-11-2009; Ord. No. 17389, § 3, 8-24-2010, 9-1-2010)

17.12.040 License—Fees.

A. The annual license fee shall be as identified in the adopted budget resolution for the current fiscal year or by other appropriately adopted resolution by the city council. Annual license fees shall be due on March 31st of each year, for the twelve months following March 31st. The license fee is levied to pay part of the expenses of enforcement of this chapter, and not for revenue. (Ord. 15753 § 1, 2004: Ord. 12118 § 3, 1994: Ord. 8997 § 1, 1987; prior code § 13-26)
(Ord. 17159, § 2, 8-11-2009)

17.12.050 License—Renewal.

A. Licenses may be renewed annually by payment of the annual established fee as, provided, if any change is made in the trailer court which would have been required to be shown on the original application, a report thereof shall be made to the permit official and approval to be obtained as in the case of an original application.

B. Renewal applications shall be made by the applicant on a form available at the permit official. (Prior code § 13-27)
(Ord. 17159, § 3, 8-11-2009; Ord. No. 17389, § 4, 8-24-2010, eff. 9-1-2010)

17.12.060 License—Revocation.

The city council may revoke or suspend the license, after reasonable notice and opportunity to be heard, for any violation of this chapter committed or permitted by the holder of the license. (Prior code § 13-28)

17.12.070 Driveways—Water supply—Sewage disposal—Garbage removal.

A. Driveways in trailer courts shall be at least twenty feet wide, graded and hard-surfaced, plainly marked, and adequately lighted at night; provided, trailer courts which were already lawfully in operation on the effective date of Ordinance No. 1518, passed and approved on May 3, 1956, and so continue in operation, may continue to operate with existing lawful driveways of less width; but if the court be redesigned the twenty-foot width requirement shall be complied with.

B. Trailer courts shall be provided with an adequate supply of water from the city water system or other approved water system if the city water is not available; and shall be connected to the city sewer system if such connection is available, otherwise sewage disposal shall be provided in accordance with the plumbing code and all applicable laws and ordinances. Provision shall be made for removal of garbage and waste in accordance with the garbage regulations of this code. (Prior code § 13-29)

17.12.080 Parking.

A. Spaces reserved for the accommodation of housetrailers shall be at least twenty feet wide and defined by markers at each corner and shall be graveled or hard-surfaced and adequately drained;

provided, trailer courts which were already lawfully in operation on the effective date of Ordinance No. 1518, passed and approved on May 3, 1956, and so continue in operation, and have such spaces not less than eighteen feet wide may continue to use such spaces.

B. Every housetrailer when parked shall be at least ten feet from any building, any other trailer, and any street property line, and at least five feet from any property line separating the court from adjoining property; provided, trailer courts which were already lawfully in operation on the effective date of Ordinance No. 1518, passed and approved on May 3, 1956, and so continue in operation, may continue to operate with existing lawful setbacks so long as no actual hazard to health or safety is caused thereby; but if the court be redesigned the new setback requirements shall be complied with. (Prior code § 13-30)

17.12.090 Toilet, bathing and laundry facilities—Building lighting.

Every trailer court shall observe the following minimum plumbing requirements:

A. One water closet for each sex for every ten units or fraction thereof;

B. For each water closet provided for men, there shall be in addition, one urinal stall or trough of equal size;

C. Each toilet room shall be provided with one lavatory or wash basin and one additional lavatory for each two additional water closets;

D. One shower stall or bathtub shall be provided for each sex for every ten units or fraction thereof;

E. Water closets, basins, showers and bathtubs shall be placed in approved buildings, so located that no unit shall be more than three hundred feet from such a facility; provided, trailer courts which were already lawfully in operation on the effective date of Ordinance No. 1518, passed and approved on May 3, 1956, and so continue in operation, need not comply with this distance requirement;

F. Buildings shall be well lighted at all times, well ventilated with all openings screened with screen wire of not less than sixteen mesh to the square inch; and all buildings shall be constructed to meet building code requirements for their designated use;

G. Toilet and bathroom floors shall have floor drains and shall be the equal of approved concrete for floors and elevated not less than four inches above yard grade with floor drains;

H. An approved slop sink shall be provided for each twenty units or major fraction thereof, with a minimum of one slop sink or laundry tub;

I. Laundry rooms with floor drain and laundry tubs or automatic washer shall be provided for each twenty units or fraction thereof;

J. It is unlawful to permit waste from sinks, showers or other fixtures in housetrailers to be deposited on any street, alley, sidewalk, trailer court, or upon any lot. Sinks, showers and other similar fixtures in housetrailers when in use shall be connected with the city sewer system or other sewer disposal approved by the building official or other designee of the city manager and in compliance with the plumbing and other ordinances of the city;

K. Whenever the number of any plumbing fixtures required by this section depends upon the number of units to be served thereby, it shall not be necessary to include those housetrailers which have such fixtures therein, properly connected to an approved water or sewer system; but at least one of each of the required fixtures shall be provided in a building in the court, even though all housetrailers are so equipped, so as to provide emergency facilities in case of the plumbing in any housetrailer should become unusable. (Prior code § 13-31)

(Ord. 17159, § 4, 8-11-2009; Ord. No. 17389, § 5, 8-24-2010, eff. 9-1-2010)

17.12.100 Management—Office required—Recordkeeping.

A. Every trailer court shall be provided with a building, or portion of a building, to be used as

an office, in which shall be kept all records pertaining to the management and supervision of the court. Such records shall be available for inspection at any reasonable time by any department or agency concerned in the enforcement of this chapter.

B. The person in charge of the court shall keep a register of all persons accommodated in the court. The register shall show the names of all persons accommodated, their home addresses, the make and model of their automobile and housetrailer, the license number (including state of issuance) and the duration of their stay. Such registers shall be preserved, and subject to inspection by law enforcement agencies, for five years.

C. Every trailer court shall be under the direct management of the owner, or of some person designated by him as his agent, for whose acts as manager the owner shall be fully responsible. An owner who does not himself manage the court shall file the name of such agent with the city license collector. (Prior code § 13-33)

17.12.110 Rules and regulations.

The owner or manager shall prescribe rules and regulations for the management of the court and shall furnish copies of all such rules and regulations to the city-county health unit. The rules shall provide not less than the following requirements:

A. Regular inspection of the water and sanitary conveniences;

B. The collection and removal of garbage and refuse;

C. Prohibition of the storage of unsightly materials or vehicles;

D. The regular cleaning, repairing and disinfecting of all buildings;

E. Such other measures as may be deemed necessary by the department of environmental services for comfort and safety of persons in the court;

F. The control and confinement of all pet animals;

G. Report to the department of public health all cases of communicable disease that come to the manager's attention and that have not been treated by a physician;

H. Immediate report to the police department of disorderly persons or conduct;

I. Regular cleaning, repairing and disinfecting of all buildings and other such measures for comfort and safety of the general public;

J. The owner or manager of the trailer court shall see that each housetrailer is equipped with an underwriter's laboratory approved fire extinguisher. If the extinguisher is a dry chemical fire extinguisher or a carbon dioxide fire extinguisher, it must have at least a 6 B C rating; if the extinguisher is of a water type, it must have at least a 2 A rating.

All extinguishers shall be inspected at least once a year by a person competent to determine whether they are in good working order and kept filled. After each inspection a tag shall be attached to the extinguisher showing the date of the inspection, the general condition of the extinguisher, and the signature, address and telephone number of the person who made the inspection.

Provided, extinguishers shall not be required if the trailer court is equipped with a system of standpipes, with one and one-half inch hose and with hose cabinets, all in compliance with the standards of the National Board of Fire Underwriters, Pamphlet No. 14, entitled "Standpipe and Hose Systems," proposed in October, 1952. The number of risers or standpipes in the trailer court shall be such that no part of the interior of any trailer in the court shall be more than five feet from the reach of a suitable nozzle attached to a seventy-five foot section of one and one-half inch hose.

All standpipe equipment and fire extinguishers shall be protected from freezing and other damage, and kept in repair and readiness for use at all times.

No reserve supplies of high hazard flammable liquid shall be stored either in the trailers or on the premises;

K. No person shall park any vehicle in any driveway in a trailer court, so as to leave less than twenty feet of the width of the driveway open for the passage of vehicles.

L. Copies of all rules and regulations shall be posted in conspicuous locations throughout the court. (Prior code § 13-34)
(Ord. 17159, § 5, 8-11-2009)

17.12.120 Parking trailers outside courts.

A. No person shall park, place, locate or keep any housetrailer, being used for habitation, on any street, alley or sidewalk, or on any private property, for more than three hours, except in a trailer court licensed under this chapter. The three-hour limitation in this section does not abrogate any shorter limitation on, or any prohibition against, stopping or parking any vehicle, as imposed under the traffic regulations or any other law or ordinance.

B. A trailer which is not being used for habitation, but is being used for any other purpose (except storing property therein) and is parked or kept elsewhere than in a licensed trailer court, shall comply with all requirements of the zoning ordinance and the building code which would be applicable if the trailer were a building or structure used for that purpose. This requirement does not apply if the trailer is on wheels and legally parked as a vehicle in a public street or alley.

C. A trailer which is not being used for any purpose, except the storage of property therein, may be kept or parked in any place where a vehicle could legally be kept or parked.

D. No person shall keep or park a housetrailer in violation of this section or in violation of Section 20.10.340 of the City Code. (Prior code § 13-36)
(Ord. 17159, § 6, 8-11-2009)

17.12.130 Inspection.

A. The department of environmental services shall inspect each trailer court at least once every year or upon receiving a complaint.

B. If the director of the department of environmental services or designee shall determine that the condition of the court has become so unsanitary as to endanger the health of the occupants of the court or the residents of the neighborhood, he may order the court closed and all occupants removed therefrom until the necessary corrections have been made. The owner or manager may appeal to the city manager from such order and the city manager may, after reasonable notice and opportunity to be heard, make such order as may be appropriate under the circumstances.

C. The owner or manager shall request annual inspections of all gas heating equipment and shall post warning notices as required by the city building code.

D. Any rental contract or lease for a unit shall contain the following statement in all capital letters:

"REPORT ANY ADVERSE HEALTH CONDITIONS IN THIS TRAILER COURT TO THE DEPARTMENT OF ENVIRONMENTAL SERVICES." (Ord. 9132 §§ 1, 2, 1987; prior code § 13-35)
(Ord. 17159, § 7, 8-11-2009)

17.12.135 Correction and re-inspection.

A. For trailer courts in violation of this chapter, the director of the department of environmental services shall issue a correction notice to the operator regarding the violation(s). The owner or operator receiving a correction notice shall promptly remedy the violation and ask for a re-inspection by the department of environmental services. No license shall be issued until the violation(s) have been satisfactorily corrected and passed by the director of the department of environmental services and all fees identified in the adopted budget resolution for the current fiscal year or by other appropriately adopted resolution by the city council have been paid.

B. A correction notice issued by the director of the department of environmental services shall contain, as a minimum, the following:

1. The name and address of the court;

2. The reason(s) for the correction notice;

3. Recommended corrective measures to bring the facility into compliance; and

4. Establish a reasonable time limit for the completion of the corrective measures.

C. Upon correction of the violation(s), the owner or operator shall call for and receive a re-inspection by the director of the department of environmental services. The process shall be repeated until compliance with the code is achieved.

D. The owner or operator of a facility receiving a correction notice shall pay the appropriate re-inspection fee as identified in the adopted budget resolution for the current fiscal year or by other appropriately adopted resolution by the city council, for each re-inspection performed by the director of the department of environmental services. Such fees shall be paid within five days from the date of re-inspection.

(Ord. 17159, § 8, 8-11-2009)

17.12.140 Enforcement.

The enforcement of the licensing, health, building, plumbing, electrical, air conditioning, safety, fire prevention, and zoning ordinance pertaining to trailer courts and trailers either existing or proposed, regardless of location, shall be under supervision of the building official as defined in Section 18.02.101.4.1 of this Code. (Ord. 16984 § 6, 2008: prior code § 13-37)

(Ord. 17159, § 9, 8-11-2009; Ord. No. 17389, § 6, 8-24-2010, eff. 9-1-2010)

17.12.150 Violation—Penalty.

Any person who shall violate any provision of this chapter shall be deemed guilty of a misdemeanor and punished by a fine of not less than ten dollars nor more than five hundred dollars, and in the case of continuing violations, each day's violation shall be deemed a separate offense. (Ord. 9430 § 13, 1988: prior code § 13-38)

Chapter 17.16

RESERVED

Editor's note—Ord. No. 17075, § 1, passed February 24, 2009, repealed Chapter 17.16 in its entirety. Formerly said chapter pertained to Inspections and certificates and derived from Ord. 16984, § 1, 2008; Ord. 16806, § 2; Ord. 15754, § 1, 2004; Ord. 9585, § 1, 1988; Ord. 8981, 1987; Prior Code §§ 13-51—13-55.

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Chapter 17.20

FAIR HOUSING ORDINANCE*

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17.20.140 Educational and public information activities.

17.20.150 Violation—Penalty.

***Editor's note**—Ord. No. 19138, § 1, adopted Feb. 2, 2021, repealed the former Ch. 17.20, §§ 17.20.010—17.20.150, and enacted a new Ch. 17.20 as set out herein. The former Ch. 17.20 pertained to similar subject matter and derived from the prior code §§ 7A-11—7A-25; Ord. 9430; Ord. 9815; Ord. 11043; and Ord. 11230, § 1(part), adopted in 1992.

17.20.010 Title.

This chapter may be cited as the "City of El Paso Fair Housing Ordinance."
(Ord. No. 19138, § 1, 2-2-2021)

17.20.020 Policy.

Through fair, orderly and lawful procedures, it is the policy of the city to promote the opportunity for each person to obtain housing without regard to race, color, sex, sexual orientation, gender identity, religion, national origin, disability or familial status. This policy is grounded upon the recognition of the right of every person to have access to adequate housing of the person's choice, and the denial of this right because of race, color, sex, sexual orientation, gender identity, religion, national origin, disability or familial status is detrimental to the health, safety and welfare of the inhabitants of the city and constitutes an unjust deprivation of rights, which is within the power and proper responsibility of government to prevent and to create a procedure for investigating and settling complaints of discriminatory housing practices; and to provide rights and remedies substantially equivalent to those granted under federal law.
(Ord. No. 19138, § 1, 2-2-2021)

17.20.030 Definitions.

As used in this chapter, unless a different meaning clearly appears from the context:

A. "Actor" means a person identified in a complaint as having committed an unlawful act under this chapter.

B. "Complainant" means a person, including the city, who files a written complaint under Section 17.20.070 of this chapter.

C. "Conciliation" means the attempted resolution of issues raised by a complaint or by the investigation of the complaint, through informal negotiations involving the aggrieved person, the actor, and the city.

D. "Conciliation agreement" means a written agreement setting forth the resolution of the issues in conciliation.

E. "Discriminatory housing practice" means an act that is unlawful under Section 17.20.040 or declared unlawful under the Federal Fair Housing Act of 1968 (Public Law 90-284) or the Federal Fair Housing Amendments Act of 1988 (Public Law 100-430).

F. "Familial status" means one or more individuals (who have not attained the age of eighteen years) being domiciled with:

1. A parent or another person having legal custody of such individual or individuals; or

2. The designee of such parent or other person having such custody, with the written permission of such parent or other person.

The protections afforded against discrimination on the basis of familial status shall apply to any person who is pregnant or is in the process of securing legal custody of any individual who has not attained the of eighteen years.

G. "Family" includes a single individual.

H. "Grievance officer" means the person serving as fair housing grievance officer and includes the assistants, agents or employees assigned to work with the grievance officer.

I. "Disability" means, with respect to a person:

1. A physical or mental impairment which substantially limits one or more of such person's major life activities;

2. A record of having such an impairment; or

3. Being regarded as having such an impairment, but such term does not include current, illegal use of or addiction to a controlled substance (as defined in Section 102 of the Controlled Substances Act, 21 U.S.C. § 802).

J. "Housing unit" means any building, structure, mobile home, or portion thereof, which is occupied, designed, or intended for occupancy by a family or families as a residence, and any vacant land offered for sale or lease for the construction or location thereon of any such building, structure or portion thereof.

K. "Person" includes one or more individuals, corporations, partnerships, associations, labor organizations, legal representatives, mutual companies, joint-stock companies, trusts, unincorporated organizations, trustees, trustees in bankruptcy, receivers and fiduciaries whether acting as principal or agent in the transaction, or two or more persons having a joint or common economic interest.

L. "Person(s) aggrieved" means any person who claims to have been injured by a discriminatory housing practice or who believes that he or she will be injured by a discriminatory practice that is about to occur.

M. "Rent" includes to lease, sublease, and otherwise grant for a consideration the right to occupy premises not owned by the occupant.
(Ord. No. 19138, § 1, 2-2-2021)

17.20.040 Unlawful discriminatory housing practices.

A. It is unlawful for a person, on the basis of race, color, sex, sexual orientation, gender identity, religion, national origin, disability or familial status:

1. To refuse to sell or rent an available housing unit to another person after the other person makes a bona fide offer to buy or rent the housing unit;

2. To refuse to negotiate with a person for the sale or rental of a housing unit;

3. To discriminate against a prospective buyer or renter in connection with the showing of a housing unit;

4. To discriminate against a person in the terms, conditions or privileges of sale or rental of a housing unit, or in the provision of services or facilities in connection therewith;

5. To represent to a person that any housing unit is not available for inspection, sale or rental when such housing unit is in fact so available, or to otherwise make unavailable or deny such housing unit to any person;

6. As to a multiple-listing service, real estate brokers' organization or other service, organization or facility relating to the business of selling or renting housing units:

a. To deny a person access to or membership or participation in the service, organization or facility, or

b. To discriminate against a person in the terms or conditions of such access, or membership or participation.

B. It is unlawful:

1. To make an oral or written statement indicating a policy of the actor or of a person represented by the actor to discriminate on the basis of race, color, sex, sexual orientation, gender identity, religion, national origin, disability or familial status in the selling or renting of a housing unit;

2. For gain or profit, to induce or attempt to induce a person to sell or rent a housing unit by a representation that a person of a particular race, color, religion, sex, sexual orientation, gender identity, national origin, disability or familial status is in proximity to, is present in or may enter into the neighborhood in which such housing unit is located;

3. To make, print or publish, or cause to be made, printed or published, any notice, statement or advertisement which with respect to the sale or rental of a housing unit that indicates any preference, limitation or discrimination based on race, color, religion, sex, sexual orientation, gender identity, national origin, disability or familial status or an intention to make any such preference, limitation or discrimination;

4. For a person whose business consists in whole or in part in the making or purchasing of any real estate loans, whether commercial or residential, with respect to such loans or financial assistance for the purpose of purchasing, constructing, improving, repairing, or maintaining a housing unit(s) to make any preferential determinations based on color, sex, sexual orientation, gender identity, religion, national origin, disability or familial status, such acts include but are not limited to the following:

a. To deny such loan or other financial assistance to a person, or

b. To discriminate against such person in the fixing of the amount, interest rate, duration or other terms or conditions of such loan or other financial assistance,

c. To refuse to provide loans or other financial assistance to a person, secured by residential real estate.

5. With respect to persons with disabilities, not to:

a. Allow reasonable modifications in existing housing,

b. Allow reasonable accommodations in rules, practices, or

c. Meet the requirement for new designs and construction all as set forth in the Fair Housing Amendments Act, referenced above. It is expressly intended that this chapter provide at least the minimum coverage allowed by the above-referenced Act, and is in no way intended to reduce the coverage provided by said Act.

6. To coerce, intimidate, threaten or otherwise interfere with any person in the exercise or enjoyment of, or on account of his or her having exercised or enjoyed, or on account of his or her having aided or encouraged any other person in the exercise or enjoyment of any right granted or protected by Sections 803, 804, 805 or 806 of the Federal Act.

(Ord. No. 19138, § 1, 2-2-2021)

17.20.050 Exemptions.

A. Nothing in Section 17.20.040 (other than Section 17.20.040(B)(3)) shall apply to:

1. The sale or rental of any single-family house by an owner, provided the following conditions are met:

a. The owner does not own or have an interest in more than three such single-family houses at any one time,

b. The house is sold or rented without the use of a real estate broker, agent or salesperson or the facilities of any person in the business of selling or renting dwellings. If the owner selling the house does not reside in it at the time of the sale or was not the most recent resident of the house prior to such sale, the exemption in this paragraph (A)(1) of this section applies to only one such sale in any twenty-four-month period.

2. Rooms or units containing living quarters occupied or intended to be occupied by no more than four families living independently of each other, if the owner actually maintains and occupies one of such living quarters as his or her residence.

B. Nothing in Section 17.20.040 shall prohibit:

1. A religious organization, association or society, or any nonprofit institution or organization operated, supervised or controlled by or in conjunction with a religious organization, association or society from limiting the sale, rental or occupancy of housing units which it owns or operates to persons of the same religion or from giving preference to such persons, provided that:

a. Such sale, rental or occupancy is not for a commercial purpose,

b. Membership in such religion is not restricted because of race, color, sex, sexual orientation, gender identity, national origin, disability or familial status;

2. A private club not in fact open to the public, which as an incident to its primary purpose or purposes provides lodging which it owns, from limiting the rental or occupancy of such lodgings to its members or from giving preference to its members; provided, that such lodging is not owned or operated for a commercial purpose;

3. Nothing in this chapter shall be deemed to prevent operating housing primarily for persons fifty-five or older or sixty-two and older as long as such operations comply with the limitations set forth in the Fair Housing Amendments Act of 1988, referenced in this chapter.

4. Appraisal exemption. This chapter does not prohibit a person engaged in the business of furnishing appraisals of real property from taking into consideration factors other than race, color, religion, sex, sexual orientation, gender identity, disability, familial status or national origin. Discriminatory appraisals are intended to be specifically prohibited under this chapter;

5. Effect on other law.

a. This chapter does not affect a reasonable local or state restriction on the maximum number of occupants permitted to occupy a dwelling or restriction relating to health or safety standards.

b. This chapter does not affect a requirement of nondiscrimination in any other state or federal law.

(Ord. No. 19138, § 1, 2-2-2021)

17.20.060 Fair housing grievance officer—Appointment—Duty to implement and enforcement of provisions.

The city council shall appoint a fair housing grievance officer and provide the grievance officer with a staff adequate to effectively enforce this chapter. The fair housing grievance officer shall implement and enforce this chapter in a manner affirmatively to further the purpose of this chapter. The grievance officer shall cooperate with the secretary of housing and urban development and the attorney general of the United States in the enforcement of the Fair Housing Act of 1968, Public Law 90-284 and the Fair Housing Amendments Act of 1988, and may assist the secretary or attorney general in any way consistent with the purpose and policy of this chapter.

(Ord. No. 19138, § 1, 2-2-2021)

17.20.070 Discriminatory housing practices—Reporting.

A. An aggrieved person may report any discriminatory housing practice to the grievance officer and may file a complaint not more than one hundred eighty days after the commission of the practice of which complaint is made. A complaint may also be filed by the grievance officer, if such officer has evidence to believe that a person has committed a discriminatory housing practice.

B. The grievance officer shall treat a complaint referred by the secretary of housing and urban development or the attorney general of the United States under the Fair Housing Act of 1968, Public Law 90-284 and the Fair Housing Amendments Act of 1988, as a complaint filed under subsection A of this section.

C. A complaint shall be in writing, verified, and contain the following information:

1. Name of aggrieved person;

2. Street address of current residence of aggrieved person;

3. Telephone number, if any, of aggrieved person;

4. Name of actor;

5. Street address of actor, if known to the aggrieved person;

6. Date of alleged discriminatory practice;

7. Street address of property involved;

8. General statement of facts pertaining to the offense, including the basis of the alleged discriminatory practice (race, color, religion, sex, sexual orientation, gender identity, familial status, disability or national origin);

9. Date of filing complaint;

10. Signature of aggrieved person;

11. If complainant is other than aggrieved person, the signature, name and street address of the complainant, in addition to the preceding information.

D. Not more than ten working days after the filing of complaint by certified mail, the grievance officer shall notify the actor named in the complaint that:

1. A complaint alleging the commission of a discriminatory housing practice has been filed against the actor and of his rights. The grievance officer shall furnish a copy of the complaint to the actor;

2. The actor may file a verified written answer to the complaint within seven days after the complaint is received by the actor.

E. A complaint or answer may be reasonably and fairly amended at any time. The grievance officer by certified mail shall furnish a copy of each amended complaint or answer the actor or the complaint, respectively, as promptly as practicable.

F. The grievance officer and staff may not make public, without the written consent of the persons concerned, the name of the actor or the aggrieved person or any information relative to a complaint, before the grievance officer notifies the city attorney of a discriminatory housing practice alleged to have been committed in a complaint or while the complaint is in the process of being investigated and prior to completion of all negotiations.

(Ord. No. 19138, § 1, 2-2-2021)

17.20.080 Discriminatory housing practices—Investigation.

A. Upon receiving a properly completed complaint, the grievance officer must process the complaint no later than thirty days. The grievance officer must also serve notice upon the complainant acknowledging the filing and advising the complainant of the time limits and forums provided under the law. The grievance officer must complete its investigation of the complaint within one hundred days of the date of the receipt of the complaint. If impracticable to do so, the officer must notify the complainant and the respondent actor in writing of this fact and the reason(s) for same.

B. If the grievance officer determines that there is not probable cause to believe that a particular alleged or suspected discriminatory housing practice has been committed, the grievance officer shall take no further action with respect to the alleged or suspected discriminatory housing practice.

C. The grievance officer shall have comprehensive authority, including but not limited to subpoena power to investigate allegations of complaints.

(Ord. No. 19138, § 1, 2-2-2021)

17.20.090 Discriminatory housing practices—Conciliation.

A. It is required that conciliation be attempted during the period after the filing of the complaint and prior to the filing of a charge or dismissal.

B. It is required that any conciliation agreement arising out of conciliation efforts by the grievance officer shall be an agreement between the actor and the complainant and shall be subject

to the grievance officer's approval. Such conciliation shall be made public unless the complainant and respondent actor otherwise agree and the grievance officer determines that disclosure is not required to further the purposes of the law.

C. If the grievance officer determines that there is probable cause to believe that a discriminatory housing practice alleged in a complaint has been committed, the grievance officer and the actor, or a person who owns, controls or manages the housing unit involved in the discriminatory practice, or a person who employs the actor, may voluntarily enter into a conciliation agreement.

D. If a conciliation agreement is executed under this section, a party to the agreement may not be prosecuted in municipal court for an offense specified in the agreement (as provided under subsection F(1) of this section) unless the grievance officer determines that the agreement has been violated and notifies the city attorney in writing of the violation.

E. A conciliation agreement must be in writing in a form approved by the city attorney and must be signed and verified by the grievance officer and each other party to the agreement. A conciliation agreement that is not executed before the expiration of thirty days after the notification to the actor (as required under Section 17.20.070(D)) must be specifically approved by the city attorney prior to its execution. A conciliation agreement is executed upon its signing and verification by all parties to the agreement.

F. A conciliation agreement executed under this section must contain:

1. An identification of the discriminatory housing practice and corresponding actor that gives rise to the conciliation agreement under subsection C of this section and the identification of any other discriminatory housing practice and actor that the parties agree to make subject to the limitation on prosecution in subsection D of this section; and

2. Identification of the housing unit subject to the conciliation agreement; and

3. A statement that each party entering into the conciliation agreement with the grievance officer agrees:

a. Not to violate this chapter or the conciliation agreement, and

b. To file with the grievance officer a monthly activity report, in accordance with the following regulations:

i. If the practice giving rise to the conciliation agreement under subsection C of this section involves:

(A) An actor who engages in a business relating to the selling or renting of housing units, or

(B) A housing unit occupied or intended for occupancy on a rental or sale basis, or

(C) A violation of Section 17.20.040(B)(4). The activity report must state, with respect to each person of the specified class discrimination in the complaint who in person contacts a party to the conciliation agreement concerning the sale, rental or financing of a housing unit, the name and street address and telephone number, if any, of such person, the date of each contact and the result of each contact,

ii. If the practice giving rise to the conciliation agreement under subsection C of this section involves a violation of Section 17.20.040(B)(2), the activity report must state the number and manner of solicitations concerning housing units made by the party and the approximate boundaries of each neighborhood in which the solicitations are made,

iii. The party who prepares the activity report shall sign and verify the report,

iv. An activity report must be filed each month with the grievance officer on the date specified in the conciliation agreement for a period of not less than three months nor more than twenty-four months, as required by the conciliation agreement.

G. In addition to the requirements of subsection F of this section, a conciliation agreement may include any other term or condition agreed to by the parties.

H. If the grievance officer determines that a conciliation agreement has been violated, the grievance officer shall give written notice by certified mail to all actors subject to the agreement.

I. The grievance officer must make a final administrative disposition of a complaint within one year of the date of receipt of the complaint, unless it is impracticable to do so. If it is impracticable, the grievance officer shall notify the complainant and actor in writing.
(Ord. No. 19138, § 1, 2-2-2021)

17.20.100 Violation of conciliation agreement.

A. A person commits an offense if, after such person and the grievance officer execute a conciliation agreement under Section 17.20.090, such person violates Section 17.20.090(F)(3)(a) or (b).

B. It is no defense to prosecution under this section that, with respect to a discriminatory housing practice gave rise to the conciliation agreement under Section 17.20.090(C):

1. The actor did not commit the offense; or

2. The grievance officer did not have probable cause to believe the offense was committed.
(Ord. No. 19138, § 1, 2-2-2021)

17.20.105 Remedies—Prompt judicial action.

The grievance officer shall have authority to seek prompt judicial action for appropriate temporary or preliminary relief pending final disposition of a complaint if the grievance officer concludes such action is necessary to carry out the purposes of the law or this chapter.
(Ord. No. 19138, § 1, 2-2-2021)

17.20.110 Discriminatory housing practices—Notification of city attorney.

A. Except as otherwise provided in subsection B of this section, if the grievance officer determines that there is probable cause to believe that a discriminatory housing practice alleged in a complaint has been committed, the grievance officer shall promptly notify the city attorney in writing of the identification of the actor and the discriminatory housing practice and direct that appropriate action be taken using the grievance officer's subpoena power if necessary. The grievance officer has the power to grant actual damages or to arrange to have the dispute adjudicated in court, at the expense of the office of the grievance officer, the claim to an award of actual damages, to an aggrieved person. The grievance officer is further authorized to seek injunctive or equitable relief in a court of competent jurisdiction, as well as assess a civil penalty or arrange to have the matter adjudicated in court at the grievance officer's agency's expenses, and may assess an award of punitive damages against the actor. It is further intended that the complainant may instead seek enforcement through a judicial election procedure with the remedies available under the above-referenced Act brought at the grievance officer's expense on behalf of the complainant.

B. After the grievance officer attempts a conciliation under Section 17.20.090, the grievance officer may postpone the notification to the city attorney required under subsection A of this section for a period of not more than thirty days after notification to the actor of a complaint (as required under Section 17.20.070(D)). However, if a conciliation agreement is executed during the thirty-day period of postponement, the grievance officer is not required to notify the city attorney of the identification of the actor or of a discriminatory housing practice specified in the conciliation agreement (as provided in Section 17.20.090(F)(1)) unless the grievance officer determines that the agreement has been violated.

C. Notification required under subsection A of this section is not a prerequisite to prosecution or referral to HUD as a discriminatory housing practice under this chapter. This section does not limit any communications, otherwise lawful, between the grievance officer and the city attorney.
(Ord. No. 19138, § 1, 2-2-2021)

17.20.120 Discriminatory housing practices—Dismissal of complaint.

If, after the city attorney files a complaint in the municipal court charging an actor with a dis-

criminatory housing practice, a conciliation agreement is executed under Section 17.20.090 before commencement of trial on the discriminatory housing practice, the city attorney may cease prosecution and move for dismissal of the complaint.
(Ord. No. 19138, § 1, 2-2-2021)

17.20.125 Enforcement by private persons.

This chapter may be enforced by an aggrieved person by the commencement of an action in an appropriate court not less than one year after the occurrence or termination of an alleged discriminatory housing practice; said court may: (1) award the plaintiff actual and punitive damages; (2) grant as relief as it deems appropriate, any temporary or permanent injunction, temporary restraining order, or other order, and allow reasonable attorneys' fees and costs. It is expressly intended that any grievance officer's actions are subject to judicial review upon application by any party aggrieved by a final order of such grievance officer. Such review process must include access to all remedies contemplated by the Fair Housing Act. Such court's authority must include authority to grant the petitioner, or any other party, such temporary relief, restraining order, or other order as the court determines is just and proper; to affirm, modify, set aside in whole or in part, the order, or remand the order for further proceedings and enforce the order to the extent the order is affirmed or modified.
(Ord. No. 19138, § 1, 2-2-2021)

17.20.130 Discriminatory housing practices—Additional remedies.

The procedures prescribed by this chapter do not constitute an administrative prerequisite to another action or remedy available under other law.
(Ord. No. 19138, § 1, 2-2-2021)

17.20.140 Educational and public information activities.

The grievance officer may conduct such educational and public information activities as are designed to promote the policy of this chapter.
(Ord. No. 19138, § 1, 2-2-2021)

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(Ord. No. 19138, § 1, 2-2-2021)

Title 18

BUILDING AND CONSTRUCTION

Chapters:

18.02	**Building and Construction Administrative Code**
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18.10	**Residential Code**
18.12	**Mechanical Code**
18.16	**Electrical Code**
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Chapter 18.02

BUILDING AND CONSTRUCTION ADMINISTRATIVE CODE*

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***Editor's note**—Ord. No. 019528, § 1, adopted Aug 1, 2023, amended Ch. 18.02 in its entirety to read as herein set out. Former Ch. 18.02, §§ 18.02.101—18.02.115, pertained to similar subject matter and derived from Ord. No. 17749, § A, 3-6-2012, adopted May 1, 2012; Ord. No. 17841, §§ 1, 7-31-2012, 2, 7-31-2012, 3, 7-31-2012, adopted Sept. 1, 2012; Ord. No. 18004, § 1, adopted April 30, 2013; Ord. No. 18090, §§ 1, 2, 3, adopted Oct. 29, 2013; Ord. No. 18224, § 1, adopted Aug. 19, 2014; Ord. No. 18225, § 1, adopted Aug. 19, 2014; Ord. No. 18334, § 1, adopted April 7, 2015; Ord. No. 18508, § 1, adopted May 31, 2016; Ord. No. 18697, § 1, adopted June 27, 2017; Ord. No. 18938, §§ 1, 2, adopted June 25, 2019; Ord. No. 19079, § 1, adopted Aug. 4, 2020.

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18.02.101 TITLE AND SCOPE

18.02.101.1 Title.

The provisions of this chapter shall constitute and be known and be cited as the "Building and Construction Administrative Code" hereinafter referred to as "this Code" of the City of El Paso.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.101.2 Purpose.

The purpose of this Code is to provide for the administration and enforcement of the following technical codes adopted by the city, as amended:

El Paso City Code:

Chapter 18.08, Building Code.

Chapter 18.10, Residential Building Code.

Chapter 18.12, Mechanical Code.

Chapter 18.16, Electrical Code.

Chapter 18.18, Outdoor Lighting Code.

Chapter 18.20, Plumbing Code.

Chapter 18.21, Private Sewage Disposal Code.

Chapter 18.24, Gas Code.

Chapter 18.28, Existing Building Code.

Chapter 18.30, Swimming Pool & Spa Code.

Chapter 18.40, Vacant Building Code.

Chapter 18.44, Grading.

Chapter 18.46, Landscape Code.

Chapter 18.47, Irrigation Code.

Chapter 18.50, Property Maintenance Code.

Chapter 18.60, Flood Damage Prevention.

Chapter 18.70, Energy Conservation Code.

Chapter 18.80, Alternative Energy Conservation Code—Deleted in its entirety.

The provisions of this Code and the technical codes shall govern all construction and installations, regardless of the trade areas concerned or of the type or class of permit under which the work is performed.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.101.3 Interpretation.

Where, in any specific case, different sections of this Code, or of the technical codes, or other codes mentioned herein, specify different materials, methods of construction or other requirements, the most restrictive shall govern.

Where there is a conflict between a general requirement and a specific requirement, the specific requirement shall be applicable.

Where there are any conflicting provisions between this Code and the International Building Code and/or International Residential Code, 2021 Edition, Chapter 1, Scope and Administration, this Code shall prevail.

All references as may be used in state or other applicable law, and in the ordinances and technical codes of the city, to the plumbing official, mechanical official, gas official, code official, or the authority having jurisdiction, shall mean the building official.

All references within the technical codes to the building department or the department of building safety shall mean the building permits and inspections division or the code compliance division of departments of the city as provided by ordinance, as applicable, or as designated by the city manager. All references in this chapter to the department, when relating to the duties of the department, shall mean the building permits and inspections division or the code compliance division, as applicable, or as designated by the city manager.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.101.4 Referenced standards.

Standards referenced in the technical codes shall be considered an integral part of the codes without separate adoption. If specific portions of a standard are denoted by Code text, only those portions of the standard shall be enforced. Where Code provisions conflict with a standard, the Code provisions shall be enforced. Permissive and advisory provisions in a standard shall not be constructed as mandatory.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.101.5 Code remedial.

This Code is declared to be remedial, and shall be construed to secure the beneficial interests and purposes thereof, which are public safety, health, and general welfare, through structural strength, stability, sanitation, adequate light and ventilation, and safety to life and property from fire and other hazards attributed to the built environment including alteration, repair, removal, demolition, use and occupancy of buildings, structures, or premises, and by regulating the installation and maintenance of all electrical, gas, mechanical and plumbing systems, which may be referred to as service systems.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.101.6 Quality control.

Quality control of materials and workmanship is not within the purview of this Code except as it relates to the purposes stated herein or the requirements of the technical codes.

18.02.101.7 Permitting and inspection.

The inspection or permitting of any building, structure, system or plan by any jurisdiction, under the requirements of this Code, shall not be construed in any court as a warranty of the physical condition of such building, system or plan or their adequacy. No jurisdiction nor any employee thereof shall be liable in tort for damages for any defect or hazardous or illegal condition or inadequacy in such building, system or plan, nor for any failure of any component of such, which may occur subsequent to such inspection or permitting.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.102 DEFINITIONS.

Unless otherwise expressly stated, the following words and terms shall have the meanings as shown in this Code. In addition, definitions located in the technical codes are hereby incorporated into this Code.

1. Building, existing: Building constructed prior to the adoption of the Building Code for which a legal certificate of occupancy has not been issued. A building subject to the existing Building Code.

2. Building official: The official appointed pursuant to Section 18.02.103.1 of this Code who is charged with the administration and enforcement of the codes enumerated in Section 18.02.101.2 above.

3. Expedited plan review: The expedited plan review process may be used to expedite the review of commercial construction documents for new construction projects, major additions to existing facilities and for complex projects upon payment of the established fee.

4. Home improvement: The repair, replacement, remodeling, alteration, conversion, modernization, or addition to any existing building or any portion or system thereof which is used or designed to be used as a dwelling unit, including construction, replacement or improvement of porches, garages, carports, roofs, fences, rock walls and swimming pools.

5. Master permit: All new construction shall require a building permit that shall serve as the master permit and all other required permits (electrical, mechanical, plumbing, fire, and/or irrigation permits) shall be obtained separately and attached to the master permit. For new construction, master permits must be obtained prior to any other required permits.

6. Separate subcontractor permit: Are permits issued for disciplines such as electrical, me-

chanical, plumbing, fire, and/or irrigation. Separate subcontractor permits are issued separately and may be used as stand-alone permits or may be attached to a master permit for new construction.

7. Permittee: The governmental entity, utility company, contractor, person or business entity that has received a permit pursuant to this chapter.

8. Tenant improvement: Work performed by or on behalf of a tenant in a completed building, or shell, or space within a building that has previously received a certificate of occupancy or certificate of completion.

9. Shell I structure: A shell I structure shall consist of foundation, exterior walls, roofing along with underground MEP systems only.

10. Shell II structure: A shell II structure may have interior walls as well as partial interior MEP systems however, remain incomplete until a tenant improvement completes the structure for occupancy.

(Ord. No. 019528, § 1, 8-1-2023)

18.02.103 POWERS AND DUTIES OF THE BUILDING OFFICIAL

18.02.103.1 Building official.

The building official shall be designated by the city manager and shall obtain valid building official certification from the International Code Council or other recognized certification program as required by the approved job specifications for the position.

(Ord. No. 019528, § 1, 8-1-2023)

18.02.103.2 Administration and enforcement.

The building official shall be responsible for enforcing the provisions of this Code and of the technical codes and is authorized to render interpretations of those codes that are consistent with their spirit and purpose. The building official is further authorized to designate employees of the building permits and inspections division and code compliance division to perform these duties.

(Ord. No. 019528, § 1, 8-1-2023)

18.02.103.3 Deputy building officials.

The building official may designate city employees to be known as deputy building officials under either the building permits and inspections division or the code compliance division for purposes of carrying out authority and delegation with respect to all matters under this Code and the technical codes.

Employees designated to be known as deputy building officials shall have a valid building official certification from the International Code Council or other recognized certification program at the time of appointment and shall have the powers as delegated by the building official. Final authority for interpretation of the codes enumerated in Section 18.02.101.2 shall rest with the building official.

To the extent that provisions in the technical codes regarding the designation or appointment of deputy building officials may be contrary to the provision in this section, this section shall control.

(Ord. No. 019528, § 1, 8-1-2023)

18.02.103.4 Chief inspector qualifications.

Chief inspectors in the building permits and inspection division and the code compliance division shall obtain valid building official certification from the International Code Council or other recognized certification program as required by the approved job specifications for the position.

(Ord. No. 019528, § 1, 8-1-2023)

18.02.103.5 Inspector qualifications.

Inspectors in the building permits and inspections division and the code compliance division shall obtain valid inspector certification from the International Code Council or other recognized certification program as required by the approved job specifications for the position.

(Ord. No. 019528, § 1, 8-1-2023)

18.02.103.6 Right of entry.

Whenever necessary to make an inspection to enforce any of the provisions of this Code and of the technical codes, or whenever the building offi-

cial has reasonable cause to believe that there exists in any building or upon any premises any condition or code violation which makes such building, structure, premises, electrical, gas, mechanical or plumbing systems unsafe, dangerous or hazardous, the building official may enter such building, structure or premises at all reasonable times to inspect the same or to perform any duty imposed upon the building official by this Code or the technical codes; provided, that if such building or premises is occupied, he shall first present proper credentials and request entry. If such building, structure or premises is unoccupied, he shall first make a reasonable effort to locate the owner or other persons having charge or control of such and request entry. If entry is refused, the building official shall have recourse to every remedy provided by law to secure entry.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.103.7 Inspection warrant.

When the building official shall have first obtained a proper inspection warrant or other remedy provided by law to secure entry, no owner or occupant or any other persons having charge, care or control of any building, structure or premises shall fail or neglect, after proper request is made as herein provided, to promptly permit entry therein by the building official for the purpose of inspection and examination pursuant to this Code or the technical codes.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.103.8 Tests.

The building official may require tests or test reports as proof of compliance with any provision of this Code or of the technical codes. Required tests are to be made at the expense of the owner, or his agent, by an approved testing laboratory or other approved agency.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.104 CONTRACTORS AND LICENSING

18.02.104.1 Contractors' responsibilities.

It shall be the duty of every contractor who shall make contracts for the construction, installation or repair of buildings, structures, or fire protection, electrical, gas, mechanical or plumbing systems, for which a permit is required, to conform to the requirements of this Code and the technical codes and with all other federal and state regulations.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.104.2 Contractor registration.

Persons, firms, partnerships or corporations doing business as contractors shall file an annual registration application with the department to be eligible to apply for and obtain permits. The established registration fee shall accompany such application. Pursuant to the State Occupations Codes, plumbing, electrical and mechanical contractors shall be exempt from the registration fee.

Plumbing, electrical and mechanical contractors shall provide copies of the bond and general liability insurance policies, to include exemptions and/or restrictions associated with such policies.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.104.3 Registration application.

The application shall require such information as determined reasonably necessary by the building official and shall include the following:

1. Company or business name, as well as all company names used for the last five years.
2. Company or business address and phone number, as well as all previous business addresses for last five years.
3. Number of years the company has been in operation.
4. Principal owner of company.
5. Name of company operator or manager.

6. Full name, date of birth, residence address, residence phone number, position with the company, and current e-mail of the person completing the application.

7. A list of individuals authorized to obtain permits on behalf of the company and what documentation each will show to verify authorization when obtaining permits on behalf of the company, such as a Driver's License Number or other identification card number.

(Ord. No. 019528, § 1, 8-1-2023)

18.02.104.4 Disclosures.

The registration application shall include disclosure of the following information:

Whether the principal owner or operator has filed an assumed name certificate with El Paso County. If so, a copy of such shall be attached.

Whether there are any restrictions and/or exceptions imposed on the company's bond or general liability coverage.

(Ord. No. 019528, § 1, 8-1-2023)

18.02.104.5 Acknowledgements.

The registration application shall be signed by the principal owner or operator of the company and shall include a statement acknowledging the following:

1. That the company and the persons involved understand that they have a duty to comply with this Code and the technical codes.

2. That to be eligible to obtain permits from the city, they must annually file the registration application required by this section.

3. That all statements made in the registration application and submittal attachments are true and correct.

(Ord. No. 019528, § 1, 8-1-2023)

18.02.104.6 Licenses required.

No individual, firm or corporation shall construct, install, maintain or repair any air conditioning, cooling, refrigeration or heating equipment, electrical equipment, plumbing, gas equipment, residential water treatment equipment, fire protection systems, or irrigation systems for which a permit is required, nor contract to do so, without being a holder of a proper license for the appropriate class of work being done as required by the State of Texas and this Code as listed herein. No individual, firm or corporation shall employ or otherwise cause any person who does not hold an appropriate license to engage in such activities for which a license is required.

1. Mechanical contractors. No person, firm or corporation shall install, maintain or repair any air conditioning, cooling, refrigeration or heating equipment, nor contract to do so, without being a holder of a proper license for the appropriate class of work being done as required by the Texas Department of Licensing and Regulation and this Code; nor shall any person, firm or corporation employ or otherwise cause any person who does not hold an appropriate license to engage in such activities for which a license is required.

2. Electrical contractors. No person or entity shall engage in electrical contracting or hold themselves out to be able to engage in electrical contracting without being the holder of a master electrician's license or the registered employer of a full-time employee who is a master electrician. Electrical work shall be performed under the control, supervision, direction and responsibility of a master electrician.

3. Plumbing contractors. No person or entity shall engage in plumbing contracting or hold themselves or itself out to be able to engage in plumbing contracting without being the holder of a master plumbing license or the registered employer of a full-time employee who is a master plumber.

4. Plumbing and gas installations, including water treatment equipment, shall be performed under the control, supervision, direction and responsibility of a master plumber and certified residential water treatment operator, respectively.

5. Irrigation systems shall be performed under the control, supervision, direction and responsibility of a master plumber or licensed irrigator.

Fire Protection.

6. Each person or organization, before engaging in business as an independent fire protection system contractor must obtain a certificate of registration from the Texas Department of Insurance (Texas State Fire Marshal's Office). A registered firm may not subcontract with an unregistered firm to allow the unregistered firm as an independent contractor to perform any act of a fire protection system contractor.

7. An individual or organization may not engage in the business of planning, certifying, leasing, selling, installing, servicing, monitoring, or maintaining:

a. Any fire alarm, or fire detection devices, or systems;

b. Portable fire extinguishers;

c. Fixed fire extinguisher systems;

d. Fire protection sprinkler systems, and

e. Any other type of fire protection system; unless the individual or organization holds a registration certificate issued by the Texas Department of Insurance (Texas State Fire Marshal's Office).

8. Medical gas installations shall be performed by a master plumber with state medical gas endorsement.

(Ord. No. 019528, § 1, 8-1-2023)

18.02.104.7 Bonds required.

It shall be the duty of every contractor, owner, firm, partnership, corporation, and builder who shall make contracts to construct, install, maintain or repair buildings, structures or systems for which a permit is required, and every contractor, owner, or builder making such contracts and subletting the same, or any part thereof, to have on file with the city, a bond in the sum of fifty thousand dollars executed in a form prescribed and approved by the city attorney. This section shall apply to plumbing, mechanical, electrical, irrigation and fire contractors acting as general contractors, whether or not state law requires a bond for their particular discipline.

Exceptions:

1. The following type of work shall require a bond in the sum of ten thousand dollars executed in the form prescribed and approved by the city attorney:

a. Irrigation installations.

b. Site lighting and landscape installations.

c. Temporary structure placement.

d. Mobile placement permits.

e. Temporary sign placements.

f. Tents in excess of two hundred square feet.

g. Fences.

h. Pavement and curb cut excavation.

However, the building official shall have the authority to require a bond in the amount of twenty-five thousand dollars if the subject work exceeds ten thousand dollars in valuation.

2. The following type of work shall not require a bond:

a. Residential property owners doing all the construction work or who will be hiring workers without employing a licensed contractor to perform the construction work on the residence they claim as their homestead.

b. Federal, state, county and city agencies and departments performing building work on their facilities and using only their employees to perform the construction work.

c. Commercial building and facilities owners, agents or lessees requesting permits for change of occupancy permits or minor nonstructural remodeling work which does not affect means of egress, such as non-loadbearing partitions within tenant spaces and whose cost does not exceed five thousand dollars.

(Ord. No. 019528, § 1, 8-1-2023)

18.02.104.8 Bond requirements.

1. No permit shall be issued under this chapter to any person, firm, or corporation applying for a permit until such applicant has filed with the city, the required bond signed by a surety company authorized to do business in Texas. The city and the person for whom the work is to be done

shall be named as co-obligees under such bond. The bond shall provide that the principal and its agents, employees, and subcontractors shall comply with all provisions of this Code and the technical codes and that the principal shall pay damages which are sustained by the city or by the person for whom the work is done and that are caused by failure of the principal, its agents, employees or subcontractors to comply with the provisions of this Code and the technical codes, and that the principal shall indemnify the city against all claims arising out of such failure to comply. Bonds shall be issued and maintained for the time period from the issuance of the permit through one year after the date of completion of the work for which the bond was required. The surety shall be acceptable to the city as to solvency; and if the city becomes dissatisfied that the surety is solvent, a new bond may be required. In addition, the surety shall be required to notify the city within thirty days of any termination or cancellation of the bond or any claims paid which reduce the liability under the bond.

2. Permit applicants who have provided a bond to the city in the amount required, for a permit pursuant to the requirements of a chapter of the City Code other than this chapter, that meets all of the requirements established in this chapter, shall not be required to obtain an additional bond but are required to provide a copy of such bond, provided that such bond specifically includes coverage for the permit or permits issued pursuant to this chapter. Permittees who have multiple permits issued pursuant to this chapter are required to provide only one current valid bond for all such permits but may be required to provide a copy of the current bond with each application for a permit.

3. Contractors under contract with a government agency shall provide the bond required in this section. No bond is required when all of the work performed pursuant to a permit issued under this chapter to a government agency is performed entirely by the employees of that government agency.

(Ord. No. 019528, § 1, 8-1-2023)

18.02.104.9 Insurance required.

No contractor, owner, firm, partnership, corporation, or builder bonded or required to be bonded under Section 18.02.104.7 shall apply for a permit until the applicant presents evidence satisfactory to the building official that the applicant meets the minimum insurance requirements stated herein. Homestead permits for new construction is not exempt from obtaining required insurance.

Exceptions: Apartment complexes, hospitals, school districts, retirement communities and other facilities approved by the building official, using only their own employees to perform all of the permitted construction work only on property which they own, subject to the approval of the building official.

(Ord. No. 019528, § 1, 8-1-2023)

18.02.104.10 Insurance requirements.

The applicant shall procure and shall maintain during the term of the permit such commercial general liability, property damage liability and vehicle liability insurance, naming the permittee and any subcontractor performing work associated with the permit as insured, co-insured or additional insured for claims for damages for personal injury, including accidental death, as well as from claims for property damage that may arise from work associated with the permit.

1. Minimum limits of liability and coverage shall be two hundred fifty thousand dollars for bodily injury liability, including death, for each person, and five hundred thousand dollars in the aggregate, and one hundred thousand dollars for property damage for each occurrence, and one hundred thousand dollars in the aggregate. Permit applicants that are governmental entities may comply with the insurance requirements of this section by providing certification that they are self-insured.

2. Such insurance shall be written by an accredited insurance company under the supervision of the board of insurance commissioners of the State of Texas. Evidence of compliance with these insurance requirements shall be considered

as having been met when copy of the insurance policy or a certificate of insurance has been filed with and approved by the building official. Such policy shall include an endorsement that the city is named as an additional insured to the full amount of the policy limits and that building official shall be notified at least thirty days in advance in the event the policy or policies are canceled and ten days in advance for cancelation due to non-payment of policy premiums. The certificate of insurance shall recite or attach such endorsement for additional insured and the notice requirements. The permittee shall maintain said insurance with a solvent insurance company authorized to do business in Texas. The policy shall provide that the insurer will defend against all claims and lawsuits which arise and will pay any final judgment of a court of competent jurisdiction against the city, its officers, agents, servants or employees and permittee, his officers, agents, servants or employees. Failure to keep the policy in full force and effect throughout the term of the permit shall be grounds for cancellation of the permit.

3. Permit applicants who have provided certificates of insurance to the city pursuant to the requirements of a chapter of the City Code other than this chapter, that meet all of the requirements established in this chapter, shall not be required to obtain additional insurance but are required to provide such certificates of insurance showing present coverage as required in this chapter.

4. Governmental agencies: Permits shall be required in connection with all city (including but not limited to El Paso Public Service Board/El Paso Water Utilities), county, state, or federal public works projects provided that no initial permit fee shall be required for such projects. When work is performed by the employees of a governmental agency, the insurance requirements of this section may be met by providing certification that the governmental agency obtaining the permit is self-insured. Work performed by those contracting with a governmental agency shall provide the insurance required herein. Permits issued for homeowner/homesteads need to provide insurance for new construction only.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.104.11 Identification of vehicles.

Every person engaging in business for which a license is required under Section 18.02.108.4 shall mark all vehicles used in the conduct of such business, with the name under which such business is conducted and the license number. The same name and number shall be used for all vehicles of such person or entity. The markings shall be as follows:

1. Permanent signs only (not magnetic or removable).

2. Letters and numbers at least two inches high.

3. A color of sufficient contrast to the vehicle color so as to be plainly legible.

4. Marked on both sides of vehicle.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.105 PERMITS

18.02.105.1 Permit application.

Any owner, authorized agent or contractor who desires to construct, enlarge, alter, repair, move, demolish or change the occupancy of a building or structure, or to erect or construct a sign, or to erect, install, enlarge, alter, repair, remove, convert or replace any electrical, gas, mechanical, plumbing or fire protection systems, or board and secure a vacant premises, where the work is regulated by the technical codes or the fire code, or to cause any such work to be done, shall first make application to the building official and obtain the required permit for the work. No permit required under this Code or the technical codes shall be issued until the proper application, on a form approved by the building official, accompanied by all required documents, has been filed with the department and the established fee has been paid.

Exception:

1. The County of El Paso, the State of Texas, and the United States Government and other governmental entities that are, as a matter of law, are exempt from having to obtain a permit, provided, that only such construction as is owned, operated and maintained by such governmental agencies.

(Ord. No. 019528, § 1, 8-1-2023)

18.02.105.3 Master permits.

For all new construction, a master permit must be obtained/issued prior to the issuance of any separate subcontractor permits for any electrical, mechanical, plumbing, fire and/or irrigation permits.

(Ord. No. 019528, § 1, 8-1-2023)

18.02.105.4 Separate subcontractor permits.

Separate subcontractor permits are required for building, gas, plumbing, mechanical, electrical, irrigation, and fire protection work.

(Ord. No. 019528, § 1, 8-1-2023)

18.02.105.5 Permits required for every building.

Permits shall be required for every building, structure, or service system. This includes every separate building or structure regardless of the number of buildings or structures located on the same site or lot and regardless of the ownership of such buildings, structures or service systems. For projects where there are multiple buildings of similar nature on a single parcel, such as apartment complexes or storage units, the master building permit fee shall be calculated as if the project were a single building.

Exceptions:

For one- or two-family dwellings; fences may be permitted under the same permit as the principal building or structure provided such fences are located on the same site or lot and are under the same ownership as the principal building or structure.

1. All portions of the same building, structure or service system created by dividing one building, structure, or service system by fire walls shall be permitted under the same permit provided all such portions thus created are located on the same site or lot and are under the same ownership, and are intended for construction under the same schedules.

2. The building official may allow construction of minor, related work of the same type under one permit for more than one building, structure, or service system when located on the same site or lot and under the same ownership.

3. In the case of city annual permits, the building official may allow for the use of a single permit to be issued to a city department that will apply to all buildings, structures, or service systems under their control that are owned or operated by the City of El Paso.

(Ord. No. 019528, § 1, 8-1-2023)

18.02.105.6 Information required.

Each application for a permit, with the required established fee, shall be filed with the building official on a form furnished for that purpose, and shall contain a general description of the proposed work and its location. The application shall be signed by the owner or his authorized agent. The building permit application shall indicate the proposed occupancy of all parts of the building and of that portion of the site or lot, if any, not covered by the building or structure, and shall contain such other information as may be required by the building official.

(Ord. No. 019528, § 1, 8-1-2023)

18.02.105.7 Drawings and specifications.

Drawings, specifications, engineering calculations, diagrams, soil investigation reports, special inspection and structural observation programs, and other data as required by the building official, shall be submitted in a digital form compatible with the city's system, with each application for permit. Paper submittals of full plan sets for new construction shall be assessed the established fee for conversion of paper documents to digital format. The construction documents shall be prepared, signed and sealed by a registered design

professional where required by state law and this Code. Where special conditions exist, the building official is authorized to require additional construction documents to be prepared by a registered design professional. At any time prior to issuance of a master building permit, all construction documents submitted to the department may be expedited to reduce the review time. Such requests must be submitted in writing to the building official.

Exception: The building official is authorized to waive the submission of construction documents and other data not required to be prepared by a registered design professional if it is found that the nature of the work applied for is such that review of construction documents is not necessary to obtain compliance with this Code.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.105.8 Additional data.

A. The building official may require details, computations, stress diagrams, and other data necessary to describe the construction or installation and the basis of calculations. All drawings, specifications and accompanying data required by the building official to be prepared by an architect or engineer shall be affixed with their signature and official seal.

B. Title sheet. Construction documents shall contain a title sheet(s) indicating the name, address, and phone numbers of project owner(s), design professionals, and contractors (if known). The title sheet shall also contain information regarding the Code review as performed by the design professional, including the size of the building, type of construction, and type(s) of occupancy, building area, and height modifications (if any), fire sprinklers (if any), deferred items (if any), and other information as directed by the building official.

C. A pre-submission conference will be required for projects receiving city assistance. Applicants with projects receiving funds of any kind or tax incentives will be required to attend a pre-submission conference with appropriate project staff to explain proposed development and receive instruction/requirements to expedite the review and permitting of their projects. The conference will be scheduled and conducted in advance of any plan submittals to the city.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.105.9 Design professional.

The architect or engineer who prepares construction documents shall have full responsibility for complying with Texas Occupations Code Ch. 1001 (Engineers) or Ch. 1051 (Architects), as applicable, and shall affix his official seal to said drawings, specifications and accompanying data for the following:

1. For new construction, additions, expansions or for changes in occupancy or use of:

A. All group A, B, E, F, H, I, and M occupancies;

B. Buildings and structures three stories or more high;

C. All buildings and structures, five thousand square feet or more in area, excluding group R-3 occupancies.

2. For tenant improvements, alterations, repair, or rehabilitation, including changes of occupancy, of:

A. All group A, E, F, H, and I, occupancies where the affected area exceeds one thousand square feet or the proposed work involves or affects structural elements, fire-resistive elements or fire exits;

B. All group B, and M occupancies where the affected area exceeds three thousand square feet meeting the requirements for a single exit and not exceeding more than 29 occupants, or the proposed work involves or affects structural elements, fire-resistive elements or fire exits;

C. All other buildings and structures three stories or more high.

For all other buildings and structures, the submittal shall bear the certification of the applicant that some specific state law exception permits its preparation by a person not so registered.

Every application for a permit to do electrical work on residential premises over five thousand square feet in living area shall be accompanied by drawings and electrical load calculations. Such drawings and electrical load calculations shall be signed by a master electrician, unless they bear the signature and seal of an electrical engineer.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.105.10 Application submission.

Plumbing, electrical, mechanical and special building (including roofing) permit applications which are not required to be accompanied by plans shall be submitted and paid for in the department.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.105.11 Examination of documents/plan review.

The building official shall examine or cause to be examined each application for a permit and the accompanying documents, consisting of drawings, specifications, computations and additional data, and shall ascertain by such examinations whether the construction indicated and described is in accordance with the requirements of the technical codes and all other pertinent laws or ordinances.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.105.12 Issuing permits.

The building official shall act upon an application for a permit without unreasonable or unnecessary delay. If the building official is satisfied that the work described in an application for a permit and the contract documents filed therewith conform to the requirements of the technical codes and other pertinent laws and ordinances, and all required established fees have been paid, he shall issue a permit to the applicant.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.105.13 "One call" system notification.

When a permit is requested by an applicant under this Code, and excavation or digging is involved, the building official shall require that a "one call" service be contacted by the permit applicant. The applicant shall be responsible for making the "one call" and no duty is expressed or implied on the part of the city to verify that such "one call" has been made by the applicant. However, the building official shall require confirmation, in a manner which he believes to be appropriate, that such a "one call" has been made by the applicant. A permit shall be denied for failure to contact a "one call" service or provide confirmation that such "one call" service has been contacted by the applicant when the building official requires that a "one call" service be contacted.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.105.14 Application referral to city departments for approval—Permits not issued for work in violation of ordinances.

A. Application for permit for the construction, alteration or repair of buildings or structures shall be subject to the requirements of all applicable ordinances, laws and regulations, including but not limited to, the requirements for acceptance of subdivision improvements, as well as drainage approval where a subdivision plat is not required. Applications involving more than one acre of land shall require stormwater pollution prevention (SWPP) permit. Applications for properties located in the floodplain shall also be subject to FEMA regulations. The city manager or designee shall promptly approve, disapprove or conditionally approve the application as to its compliance with all applicable ordinances, laws and regulations; and no permit shall be issued until the application is so approved.

B. A permit shall not be issued for any work which would involve a violation of the zoning ordinance or any other law or ordinance, and any permit so issued shall be void.

C. The approval, disapproval or conditional approval of a permit required by this Code shall be based on the orders, regulations, ordinances or other duly adopted requirements in effect at the

time the application for the permit is filed. When a series of permits is required for the development of a project, the applicant, by providing verification of the orders, regulations, ordinances or other duly adopted requirements in effect at the time the original application was filed for the first permit in that series, shall be entitled to develop that project based on those orders, regulations, ordinances or other duly adopted requirements.

D. No permit shall be issued until all required and/or applicable impact fees have been paid and any permit so issued shall be void.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.105.15 Prerequisite to issuance of permits.

A. Unconditional permits. An unconditional master building permit shall be issued for a lot within a subdivision, or a lot within an approved phase of a subdivision when the subdivision plat required by Title 19 (Subdivisions) of this Code has been recorded and the subdivision improvements required by the subdivision plat or accompanying subdivision improvement plans, have been constructed, completed, and if the improvements are public improvements, accepted for maintenance by the city.

B. Conditional permits. If the subdivision improvements required under Title 19 (Subdivisions), have not been constructed, completed, and if the improvements are public improvements, accepted by the city for maintenance, then the building official may issue conditional master building permits for lots within the subdivision or lots within an approved phase of the subdivision provided the following requirements are complied with:

1. The developer provides financial security in accordance with Section 19.08.040 of the City Code for completion of the subdivision improvements; and

2. Fully charged fire hydrants are installed within the subdivision or the approved phase of the subdivision; and

3. Drivable surface, acceptable to the fire code official and the building official in accordance with applicable ordinances, has been constructed within the subdivision or the approved phase of the subdivision.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.105.16 Authorization to proceed with construction.

The building official may issue to a contractor duly registered with the department an authorization to proceed with construction without a master building permit subject to the following conditions:

1. Application for the master building permit has been submitted to the building official, and

2. All required drawings for all aspects of the work have been submitted to the building official for review; and,

3. After, the first review cycle and no conflicts or violations with Title 19 and 20 of the City Code are determined; and,

4. Either the owner or lessee of the building or structure, as applicant, has in the form and manner required by the building official, provided a statement that the applicant understands and agrees that the project is proceeding at the applicant's sole risk and that all requirements of this Code necessary to obtain the master building permit have been accomplished.

The work commenced under an authorization to proceed with construction shall not progress beyond the first required inspection for any type of permit sought until the permit is issued. No inspection shall be granted until the permit is issued, unless authorized by the building official.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.105.17 Affidavits.

The building official may accept a sworn affidavit from a registered architect or engineer stating that the plans submitted conform to the technical codes. For buildings and structures the affidavit shall state that the plans conform to the laws as to egress, type of construction and general arrangement and if accompanied by drawings showing the structural design, a statement that the

plans and design conform to the requirements of the technical codes as to strength, stresses, strains, loads and stability. The building official may without any examination or inspection accept such affidavit, provided the architect or engineer who made such affidavit agrees to submit copies of inspection reports as inspections are performed and upon completion of the structure, electrical, gas, mechanical or plumbing systems a certification that the structure, electrical, gas, mechanical or plumbing system has been erected in accordance with the requirements of the technical codes. When, under this section, the building official relies upon such affidavit, the architect or engineer shall agree, as provided in the affidavit required in this section, to accept full responsibility for the compliance of the design documents with all provisions of the technical codes and other pertinent laws or ordinances.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.105.18 Permit issued on basis of an affidavit.

Whenever a permit is issued in reliance upon an affidavit submitted under Section 18.02.105.17, or whenever the work to be covered by a permit involves installation under conditions which, in the opinion of the building official, are hazardous or complex, the building official shall require that the architect or engineer who signed the affidavit or prepared the drawings or computations be responsible for conformity with the permit, and upon completion make and file with the building official written affidavit that the work has been done in conformity with the reviewed plans and with the provisions of the technical codes. In the event such architect or engineer is not available, the owner shall employ in his stead another architect or engineer licensed by the State of Texas.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.105.19 Plans.

When the building official issues a permit, he shall endorse in writing or by stamp, both sets of plans "THESE PLANS HAVE BEEN REVIEWED FOR GENERAL CONFORMITY WITH ALL PERTINENT CODES AND ORDINANCES." One set of drawings so reviewed shall be retained by the building official and the other set shall be returned to the applicant. The permitted drawings shall be kept at the site of work and shall be open to inspection by the building official or his authorized representative. The printing of approved electronic plan sets for use by the contractor shall be the responsibility of the permit applicant.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.105.20 Conditions of permits.

A permit issued shall be construed as authority to proceed with the work and not as authority to violate, cancel, alter, or set aside any of the provisions of the technical codes, nor shall issuance of a permit prevent the building official from thereafter requiring a correction of errors in plans, construction, or violations of this Code or the technical codes.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.105.20.1 Construction work hours.

A permit issued shall be construed as authority to proceed with the work from Monday through Saturday from 6:00 a.m. to 10:00 p.m. (the "established construction hours"). No work, including but not limited to new construction, repair, remodeling or grading of any kind shall be conducted outside the established construction hours or on legal holidays or Sundays unless the property owner or his authorized agent has paid the established fee and obtained an after-hours construction/grading permit.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.105.20.2 After hours construction/grading permit.

An application for after hours construction permit shall be granted by the permit official upon a showing of urgent necessity, or upon a showing that the public interest will be served by issuance

of the permit, or upon a showing that the public peace and quiet will not be reasonably disturbed, provided the following requirements are met:

A. The application shall provide a written rationale detailing the reason for the request.

B. The application shall be filed seven days prior to the start date for after hours construction.

C. The permit holder shall agree to provide a completed notification form as provided by the permit official to persons occupying property within three hundred feet of the construction site.

D. Notification shall also be posted on the construction site and shall indicate a contact name and phone number of the property owner or his authorized agent.

E. The permit official shall have the authority to revoke the permit if reasonable accommodations are not made to minimize neighborhood or resident disruption.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.105.20.3 Emergency condition.

Certain events or circumstances may occur or arise that require a property owner or his authorized agent to take immediate action outside the established construction hours to address imminent public safety concerns, or to protect the integrity of a construction site. Under such or similar exigencies, the property owner or his authorized agent may use commercially reasonable efforts to immediately address the emergency or protect the construction site and shall notify the permit official, pay the established fee and obtain an after hours construction permit as soon as reasonably practicable thereafter.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.105.20.4 Duration of permit.

An approved after-hours construction/grading permit shall be valid for the duration of time specified on the application, not to exceed one year. A permit holder may request one permit renewal upon payment of the established fee.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.105.21 Nontransferable.

Permits issued under this chapter shall be personal to the permittee, and shall not be assigned or transferred to any other person, firm, builder, owner or contractor. A registered contractor may not obtain a permit on behalf of an unregistered contractor.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.105.22 Placement of permit.

The permit holder, prior to starting construction and until the final inspection of the work, shall post the permit, in a conspicuous place at the address where the permit work is authorized. In addition, the permit holder shall post a sign indicating the street address and suite number, if any, of sufficient size to be readable from the construction site access entry.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.105.23 Duration of permits.

1. Every permit issued shall automatically expire and become null and void under any of the following circumstances:

a. The work authorized by such permit is not commenced within six months from the issuance date of the permit;

b. The work authorized by such permit is suspended or abandoned for a period of six months after the time the work is commenced;

c. The permit applicant fails to call for and receive an inspection for any period of six months.

d. Residential roofing, window replacement, water heater replacement and a/c conversion permits shall expire within one month from the issuance date of the permit. No extensions or completion permit shall be issued for these permit types.

e. Residential fence and swimming pool permits shall expire within six months from the issuance date of the permit. No extensions or completion permits shall be issued for these permit types.

2. A permittee holding an unexpired permit may apply for a maximum of two extensions of time for periods of not more than one hundred eighty days each; provided that the request for

extension is made in writing prior to the expiration of the current permit, and justifiable cause is demonstrated. Such extension authorizations shall be made in writing by the building official. There shall be no fee for the extension of an unexpired permit.

3. A completion permit may be obtained for an expired master building or associated permit(s) within one year of the date of expiration of the original master building or associated permit(s) provided, there have been no modifications to the existing plans, there is no need for additional plan review and the existing plans still comply with current codes. The cost of the completion permit shall be as prescribe by the adopted FY Schedule C in effect on the date of permit application. An expired subcontractor permit may only be renewed in conjunction with the renewal of an expired master building permit.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.105.24 Refusal to issue permit.

If the application for a permit and the accompanying contract documents describing the work do not conform to the requirements of the technical codes or other pertinent laws or ordinances, or the required established fees have not been paid, the building official shall not issue a permit, but shall return the contract documents to the applicant with his refusal to issue such permit. Such refusal shall, when requested, be in writing and shall contain the reason for refusal.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.105.25 Denial/Revocation of permits.

The building official shall deny or revoke permits to any contractor upon any one of the following findings:

A. Denial.

1. The contractor has failed to file the annual registration application required by this section.

2. The contractor has made false statements or misrepresentations in the annual registration application required by this section.

3. The contractor has any outstanding fees or penalties due in connection with the permit application.

4. The permit official shall have the authority to deny permits if a contractor has five or more expired permits at any given time.

B. Revocation.

1. The contractor was a holder of previous permits that have been revoked for any of the following grounds:

a. For failure to complete the work described in the permit.

b. For making false statements or misrepresentations as to material facts in the permit application.

c. Work was done in violation of or not in conformity with the provisions of this Code or the technical codes.

Exception:

Prior permit cancellations/revocations that were cancelled/revoked at the request of the permit holder and property owner or lessee who is a party to the contract on which the permit is based, and not involving any of the grounds listed herein.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.105.26 Ineligibility period.

A contractor whose permit privileges have been revoked by the building official as described in Section 18.02.105.25 shall be ineligible to obtain permits for a period of time as follows:

1. If a contractor has had one permit revoked in any twelve-month period, such contractor shall be ineligible to obtain a permit for a period of three months; provided, however, that in the event that the contractor cures the cause for revocation of the permit which was involved in the dispute, such contractor shall immediately become eligible to obtain permits.

2. If a contractor has had two permits revoked in any twelve-month period, such contractor shall be ineligible to obtain a permit for a period of six months.

3. If a contractor has had three permits revoked in any twelve-month period, such contractor shall be ineligible to obtain permits for a period of one year.

4. If a contractor has five or more expired permit, such contractor shall be ineligible to obtain new permits until such time as the number of expired permits is less than five.

Upon finding that a contractor is ineligible to obtain permits, the building official shall provide written notice of such finding to the contractor or to their principal place of business.

Exception:

Permits may be issued to a contractor whose permit privileges have been revoked, for completing work on expired permits
(Ord. No. 019528, § 1, 8-1-2023)

18.02.105.27 Appeals.

Any contractor that is declared by the building official to be ineligible to obtain permits pursuant to this section shall have the right to appeal to the construction board of appeals pursuant to the provisions of Chapter 2.30.
(Ord. No. 019528, § 1, 8-1-2023; Ord. No. 019762, § 1, 7-22-2025)

18.02.105.28 Cancelation/termination of permit.

1. A permit may be canceled by the permit holder at any time prior to the commencement of any work.

2. Subsequent to performance of any work, a permit may be canceled or terminated by the general contractor, permit holder or property owner with the concurrence of all parties involved.

3. Absent any concurrence from the parties involved, the permit shall remain on hold until its expiration period or good cause is shown to the building official that allows the permit to be cancelled.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.105.29 MISCELLANEOUS PERMIT PROVISIONS

18.02.105.29.1 Homeowner/homestead permits.

Permits shall be issued to a homeowner doing work on their intended primary residence only if all of the following conditions apply:

1. The permit is for an R-3 occupancy that is the homeowner's own primary residence which he currently occupies;

2. The homeowner will act as his own general contractor;

3. The homeowner will perform some or all of the proposed building construction work (as permitted under this Code);

4. The homeowner provides proof that all electrical, plumbing, mechanical or irrigation work shall be performed by contractors registered with the department;

5. Permits for trades will only be issued to contractors licensed by the state and registered with the city.

6. Insurance requirements for new single-family dwellings shall be as per Section 18.02.104.10.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.105.29.2 Homeowner permits.

With the exception of homestead permits as defined in Section 18.02.105.29.1. No permit shall be issued to the owner of any building, structure or occupancy, except R-3 occupancies.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.105.29.3 Mobile homes/manufactured housing placement permit.

The building official may issue a placement permit for manufactured homes, mobile homes or HUD-Code manufactured homes provided that all of the following conditions are met:

1. The building is erected on a permanent chassis and designed to be used as a dwelling with or without a permanent foundation.

2. The building meets the regulations of the Title 24, CFR Section 3280.

3. The building is placed in an area whose zoning permits the placement of mobile homes and the building is installed in accordance with the manufacturer's requirements, in accordance with the rules promulgated by Title 24, CFR Section 3280 Housing and Urban Development (HUD) Code of Federal Regulations and all of the technical codes and zoning codes of the city are met.

4. Placement of any mobile home constructed prior to 1976 is not allowed within the City of El Paso unless any such mobile home is in compliance with Section 3 above.

(Ord. No. 019528, § 1, 8-1-2023)

18.02.105.29.4 Texas Industrialized Buildings/Housing Placement Permit.

The building official may issue a placement permit for structures built at a location other than the permanent commercial site and transported to the permanent site for erection and installation provided that all of the following conditions are met:

1. The building meets all the requirements of the Texas Industrialized Housing and Building Act, Texas Occupations Code Ch. 1202 and is classified as "industrialized building" and bears an approved decal or insignia under the rules of the Texas Department of Licensing and Regulation reflecting that the building has been inspected at the manufacturing plant or facility by the Texas Department of Licensing and Regulation.

2. Two complete sets or an electronic copy of the designs, plans and specifications bearing the stamp of Texas Industrialized Building Code Council are submitted to the department for review.

3. The building is placed on a site-built permanent foundation system designed by a professional engineer.

4. The building was not designed or intended to be used other than on a site-built permanent foundation.

5. All of the requirements of this Code, the International Fire Code, the Texas Accessibility Standards, the technical codes, the municipal code and other city, state and federal regulations are met.

(Ord. No. 019528, § 1, 8-1-2023)

18.02.105.29.4.1 Temporary Placement Texas Industrialized Buildings for School Sites.

A. The building official may issue a temporary placement permit for structures built at a location other than the permanent commercial site and transported to the permanent site for installation provided that all of the following conditions are met:

1. The building meets all the requirements of the Texas Industrialized Housing and Building Act, Texas Occupations Code Ch. 1202 and is classified as "Industrialized Building" and bears an approved decal or insignia under the rules of the Texas Department of Licensing and Regulation reflecting that the building has been inspected at the manufacturing plant or facility by the Texas Department of Licensing and Regulation.

2. Two complete sets or an electronic copy of the site plan showing the location were the building will be placed, designs, plans and specifications bearing the stamp of Texas Industrialized Building Code Council are submitted to the department for review.

3. The building is securely anchored to an on-site-built foundation system designed by a professional engineer.

4. The building was not designed or intended to be used other than on a site-built permanent foundation.

5. All of the requirements of this Code, the International Fire Code, the Texas Accessibility Standards, the technical codes, the municipal code and other city, state and federal regulations.

B. Duration:

1. An approved temporary placement permit for school sites shall be valid for two years from the date the permit is issued.

2. Upon expiration of the placement permit the structure will be removed or;

3. A new permit application for permanent placement shall be submitted. Such application for permanent placement shall comply with all applicable requirements of this Code, the International Fire Code, the Texas Accessibility Standards, the technical codes, the municipal code and other city, state and federal regulations.

4. Prior to permit issuance an affidavit shall be provided by an authorized representative of the school district acknowledging the duration of permit.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.105.29.5 Temporary gas permit.

A special permit is required when an owner or contractor intends to use fuel gas for temporarily heating a structure or part of a structure before certification of all plumbing or mechanical work. Such permit is required whether the intended use is for all or part of the system of piping, devices and appliances making up the permanent heating system for the structure, or by the use of a temporary system, or by the use of parts of either or both systems.

Such owner or contractor shall make application to the building official on forms provided by the department and shall set out the proposed use of the system, its design and period of use desired.

If the building official finds that such request is reasonable as to design and length of time requested under the conditions existing in the particular case, and that safe conditions of operation of such system can be maintained then the building official shall issue the permit.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.106 PERMIT FEES

18.02.106.1 General.

The fees described in this section as well as the fees described in the Fire Prevention Code are applicable to all plumbing, mechanical, electrical, irrigation, and fire contractors.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.106.2 Prescribed fees.

Fees are established and required in conjunction with all permits and services provided under this title, including this Code and the technical codes, except as may be specifically excepted or provided otherwise. A permit, although issued, shall not be valid until all established fees have been paid for each of the various types of permits and services listed therein. An amendment to a permit shall not be valid until the additional established fee, if any, due to an increase in the estimated cost of the building, structure, electrical, plumbing, and mechanical or gas systems, has been paid.

Exceptions:

1. The City of El Paso, the County of El Paso, the El Paso Housing Authority, the State of Texas, other governmental entities that are, as a matter of law, exempt from having to pay permit fees, utility companies and other entities whose permit fees have been waived by franchise agreement or resolution of the city council, and the United States Government are exempted from the payment of the permit fees required in this chapter; provided, that only such construction as is owned, operated and maintained by such governmental agencies shall be exempted from payment of such permit fees. Also, provided that the city council may authorize the building official to waive the permit fees required in this chapter when the project for which the permit is issued is a city project. For the purpose of this subsection, a "city project" shall be a project that the city council finds to be for the benefit of the general public, and that is to be either constructed on property owned by the city or with funds provided in whole or part by the city.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.106.3 Accounting.

The city shall keep an accurate accounting of all permit fees and other moneys collected, the names of all persons upon whose account the

same was paid, along with the date and amount thereof, in accordance with the established records retention schedule.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.106.4 Schedule of permit fees.

On all buildings, structures, electrical, plumbing, mechanical and gas systems or alterations requiring a permit, the established fee for each permit shall be paid at the time application is filed.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.106.5 Building permit valuations (excluding new residential and residential additions.

If, in the opinion of the building official, the valuation of building, alteration, structure, electrical, gas, mechanical or plumbing systems appears to be underestimated on the application, permit shall be denied, unless the applicant provides a certified professional appraisal to meet the approval of the building official. The certified appraisal shall include total cost, such as required earthwork within the building area, electrical, gas, mechanical, plumbing, including materials, labor and equipment, and all other permanent equipment.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.106.6 Valuation for commercial master permits.

Permit valuation for the master permit for new commercial buildings and structures construction work shall be based on the International Code Council rates for building type and occupancy in effect on the date of the permit application. Subsequent to the completion of work, a certified professional appraisal may be submitted to the building official for a re-valuation.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.106.6.1 Permit fee for new residential or residential addition permits.

Permit fees for the master permit for new residential or residential additions buildings and structures construction work shall be based on the square footage cost prescribed by the FY Schedule C in effect on the date of the permit application. Permit fees for new residential buildings may be adjusted per council action.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.106.7 Valuation for shell only permits.

Permit valuation for new commercial shell only buildings and structures construction work shall be based eighty percent of the value obtained from the International Code Council rates for building type and occupancy in effect on the date of the permit application.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.106.7.1 Valuation for shell II only permits.

Permits for shell II permits shall be based on the International Code Council rates for building type and occupancy in effect on the date of the permit application.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.106.8 Valuation for tenant improvement permits to shell buildings.

Permit valuation for tenant improvements to commercial shell only buildings and structures construction work shall be based on twenty percent of the value obtained from the International Code Council rates for building type and occupancy in effect on the date of permit application.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.106.9 Valuation for foundation only permits.

Permit valuation for foundation only work on commercial buildings shall be based on ten percent of the value obtained from the International Code Council rates for building type and occupancy in effect on the date of the permit application. This work shall be authorized separately and the fee shall be in addition to the overall permit fee.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.106.9.1 Valuation for groups F (factory), S (storage), and U (utility occupancies), as defined by the IBC.

Permit valuation for commercial buildings of, Groups F (Factory), S (Storage), and U (Utility) occupancies, shall be based on seventy percent of the value obtained from the International Code Council rates for building type and occupancy in effect on the date of the permit application.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.106.10 Fee refunds.

A portion of the fee paid for building, electrical, plumbing, or mechanical permits may be returned to the permit applicant; provided, that no work authorized under the permit has been started, and the permit and associated records are returned for cancellation within six months after the date of issuance. In each case, thirty percent of the established permit fee shall be retained by the department for plan review, in addition to any costs expended by the department for the issuance and maintenance of records, inspections to verify that no work was started, and costs of processing and preparing the refund.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.106.11 Submission, plan review and additional review fees.

Each application for master or separate subcontractor permit shall be subject to a permit fee. The total permit fee includes fees for plan review and required inspections and may also include an established fee for plan submission. All fees shall be collected at the time of permit issuance.

The established plan submission fee shall only be assessed if the plans for a particular project require more than three reviews. Any assessed plan submission fee shall be collected at the time of permit issuance.

Plans that amend or revise the following, subsequent to the issuance of a permit, shall require an additional plan review and the applicant shall be assessed the established fee for the additional plan review. The established fee shall be equal to the sum of the plan submission fees for each additional review cycle that require review due to:

a. Modifications to the electrical, plumbing or mechanical systems which require revised drawings or calculations;

b. Modifications to the fire, smoke, carbon monoxide alarms or suppression systems which require revised drawings or calculations;

c. Modifications to the fire separations, accessibility requirements or ingress/egress which require revised drawings or calculations;

d. Modification to the structural systems which require revised drawings or calculations; or

e. Modifications which expand the occupancy or type of use for the structure which require revised drawings or calculations.

If no permit under the plan is secured within one hundred eighty days after the date of permit application, then the application shall be considered expired and a plan review fee in the amount of thirty percent of the established permit fee and any applicable submission fee is due and payable. The submission fee and plan review fee is nonrefundable and may not be applied to any future building permits.

If plans are approved and a permit is secured within one hundred eighty days after the date of permit application, the permit fee and any applicable plan submission fee are due and payable at the time of permit issuance.

If at any time subsequent to permit issuance, there is no activity in excess of one hundred eighty days, such application shall be declared expired. Upon expiration, any plans, and all other documents associated with the application for permit shall be destroyed.

The building official shall collect any outstanding fees on the subject property prior to the issuance of any permits.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.106.12 Plan review options available to the applicant.

The following optional preliminary plan review processes are available to all applicants. To

take advantage of one of the optional plan reviews mentioned below an applicant shall pay the fee established by city council in the annual budget resolution for the requested preliminary plan review prior to application for a master building permit.

1. Expedited review 1: The fee as prescribed in the annual budget resolution, shall apply to all construction/building permits with a valuation equal to or greater than three hundred thousand dollars, excluding one- and two-family dwellings.

2. Expedited review 2: The fee as prescribed in the annual budget resolution, shall apply to all construction/building permits with a valuation less than three hundred thousand dollars, including one- and two-family dwellings regardless of valuation.

(Ord. No. 019528, § 1, 8-1-2023)

18.02.106.13 Building permit fees: Mechanical, Electrical, Plumbing, Gas, Irrigation, Solar, permit fees.

A person obtaining a permit shall pay the established fee.

(Ord. No. 019528, § 1, 8-1-2023)

18.02.106.14 Mechanical permit fees.

For all mechanical construction work requiring a mechanical permit, the established fee for each mechanical permit shall be paid at the time the permit is issued.

(Ord. No. 019528, § 1, 8-1-2023)

18.02.106.15 Electrical permit fees.

For all electrical construction work requiring an electrical permit, the established fee for each electrical permit shall be paid at the time the permit is issued.

(Ord. No. 019528, § 1, 8-1-2023)

18.02.106.16 Plumbing permit fees.

For all plumbing construction work requiring a plumbing permit, the established fee for each plumbing permit shall be paid at the time the permit is issued.

(Ord. No. 019528, § 1, 8-1-2023)

18.02.106.17 Gas permit fees.

For all gas construction work requiring a gas permit, the established fee for each gas permit shall be paid at the time the permit is issued.

(Ord. No. 019528, § 1, 8-1-2023)

18.02.106.18 Temporary gas permit fee.

A nonrefundable established permit fee is required for each month or portion of a month for which such permit is requested and shall be paid when the application is filed. This shall be separate from and in addition to fees required under Section [18.02.106.17] 18.02.109.6.

(Ord. No. 019528, § 1, 8-1-2023)

18.02.106.19 Irrigation permit fees.

For all irrigation work requiring a permit, the established fee for each irrigation permit shall be paid at the time the permit is issued.

(Ord. No. 019528, § 1, 8-1-2023)

18.02.106.20 Moving of buildings or structures.

A person obtaining a permit for the moving of buildings or structures shall pay the established fee.

(Ord. No. 019528, § 1, 8-1-2023)

18.02.106.21 Demolition of building or structure.

A person obtaining a permit for the demolition of any building or structure or of any portion of a building or structure shall pay the established fee.

(Ord. No. 019528, § 1, 8-1-2023)

18.02.106.22 Temporary structures.

A person obtaining a permit for temporary structures (construction sheds, seat canopies, tents, etc.), shall pay the established fee as applicable:

A. For tents to be used for assembly or display or storage.

B. For amusement devices (rides) available to the public, at any one location.

(Ord. No. 019528, § 1, 8-1-2023)

18.02.106.23 Sidewalk, street, alley, public right-of-way, and parking meter space, rental.

A. Each application for permit shall pay an additional established fee for use of any sidewalk, street, alley, public right-of-way, or any space the occupancy of which prevents the use of one or more parking meters.

B. Such fee shall not apply to permits issued pursuant to Chapter 13.08 (Excavations) or Chapter 18.44 (Grading).

C. If the use of the space is not discontinued at the expiration of the time for which payment has been made, the permit may be extended from time to time upon payment of further fees computed as if the extension were an original issuance. If the use of the parking meter space is discontinued before expiration of the time covered by the advance payment, and notice thereof given the building official so that he may ascertain whether such use is actually discontinued, the holder of the permit shall be entitled to a refund of the unearned portion of the payment meter space, but not to a refund of any other fees paid under this section.

D. The permits and fees herein required for use of streets, sidewalks, alleys and parking meter space shall not be required when such use is necessary for the purpose of paving, surfacing, repairing, widening or other improvement of streets, sidewalks or alleys, done by or under contract with the city. The contractor and the person in charge of such work shall, however, as far as possible consistent with the nature of work, stack or arrange all material and equipment in such manner as not to create a hazard to persons using the streets, sidewalks or alleys, and upon completion or abandonment of the work shall clear the occupied areas.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.106.24 Fees for fire protection systems and appliances.

On all construction work requiring a permit for the installation of fire protection systems and appliances, the established fee for each permit shall be paid at the time the permit is issued.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.106.25 Fees for temporary or partial certificate of occupancies.

On the original application and for each extension thereof, the established fees for temporary or partial certificate of occupancies shall be paid at the time of each application or request for extension.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.106.26 Investigation inspection fees.

An investigation permit fee in the established amount shall be charged for any special investigation inspection, which is not a part of a regular permit program to include a pre-inspection, or any special investigation prior or subsequent to commencement of work.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.106.27 Re-inspection fees.

A re-inspection fee in the established amount shall be additionally charged for any re-inspection required because the work failed to comply with this Code, the technical codes, the Fire Prevention Code, or because the work was not ready for the inspection as requested.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.106.28 Starting work without a permit—Commercial.

Any person who commences any work on a commercial building, structure, electrical gas, mechanical or plumbing system before obtaining the necessary permits or written authorization from the building official shall be required to obtain a permit at three hundred percent of the established permit fee. The payment of such permit fee shall

not relieve such person from concurrent or later prosecution for violation of this Code or the technical codes.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.106.29 Contractor starting work without a permit—Residential.

Any contractor who commences any work on a residential building, structure, electrical, gas, mechanical or plumbing system before obtaining the necessary permits or written authorization from the building official shall be required to obtain a permit at three hundred percent of the established permit fee. The payment of such permit fee shall not relieve such person from concurrent or later prosecution for violation of this Code or the technical codes.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.106.30 Homeowner starting work without a permit—Residential.

Any homeowner who commences any work on his own residential building, structure, electrical, gas, mechanical or plumbing system before obtaining the necessary permits or written authorization from the building official shall be required to obtain a permit at two hundred percent of the established permit fee. The payment of such permit fee shall not relieve such person from concurrent or later prosecution for violation of this Code or the technical codes.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.107 INSPECTIONS

18.02.107.1 Inspections.

The building official, upon notification from the permit holder or his agent shall make the following inspections and such other inspections as necessary, and shall either release that portion of the construction or shall notify the permit holder or his agent of any violations which must be corrected in order to comply with the technical codes.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.107.2 Existing building inspections.

Before issuing a permit the building official may examine or cause to be examined any building, electrical, gas, mechanical or plumbing systems for which an application has been received for a permit to enlarge, alter, repair, move, demolish, install or change the occupancy. He shall inspect all buildings, structures, electrical, gas, mechanical and plumbing systems, from time to time, during and upon completion of the work for which a permit was issued. He shall make a record of every such examination and inspection and of all violations of the technical codes.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.107.3 Retaining walls.

1. Foundation inspection: To be made after trenches are excavated, forms erected, and reinforcing steel is in place.

2. In-progress inspection: Walls retaining over four feet of earth shall also be subject to an in-progress inspection as well as material testing, to be performed when the wall is approximately twenty-five percent to fifty percent complete. Walls retaining less than four feet of earth do not require in-progress inspections.

3. Final inspection: To be made after the retaining wall is completed.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.107.4 Reroofing.

Final inspection: To be made after the reroofing or recovering work has been completed.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.107.5 Signs.

1. Foundation inspection: To be made after piers are drilled or after trenches are excavated and forms erected.

2. Electrical sign inspections: To be made after the wiring and equipment is installed. This inspection shall be made at the place of business of the electrical permit holder or of the sign permit holder, except that the building official may approve on-site inspection.

3. Final inspection: To be made after the sign installation is completed and ready for use.

4. Sign inspections. Sign foundations, piers and trenches shall be inspected for freestanding signs greater than eight feet in height or two hundred square feet in facial area.

(Ord. No. 019528, § 1, 8-1-2023)

18.02.107.6 Irrigation and landscaping systems.

1. Irrigation system inspection. Piping, wiring, controllers and backflow prevention devices required under Chapter 18.47 (Irrigation systems) shall be inspected prior to final occupancy.

2. Landscape inspection. Trees, plant materials, hard surface materials, etc. required under Chapter 18.46 (Landscape) shall be inspected prior to final occupancy.

(Ord. No. 019528, § 1, 8-1-2023)

18.02.107.7 Plaster fire protection.

In all buildings where plaster is used for fire protection purposes, the permit holder or his agent shall notify the building official. Plaster shall not be applied until the release from the building official has been received.

(Ord. No. 019528, § 1, 8-1-2023)

18.02.107.8 Reinforcing steel and structural frames.

Reinforcing steel or structural framework of any part of any building or structure shall not be covered or concealed without first obtaining a release from the building official.

(Ord. No. 019528, § 1, 8-1-2023)

18.02.107.9 Inspection of annexed installations.

When an area is annexed to the city, the existing buildings therein may be inspected as set forth in Section 18.02.107.2.

(Ord. No. 019528, § 1, 8-1-2023)

18.02.107.10 Non-business hour inspections and inspections by appointment.

Non-business hour inspections and inspections by appointment. Inspections may be made upon payment of the established fee. Inspections requested for weekends, city-observed holidays, or other times outside regular business hours of the department shall be subject to prior approval of the building official. A minimum of two hours shall be charged for non-business hour inspection requests and inspections by appointment, which shall be paid before the inspection will be scheduled.

(Ord. No. 019528, § 1, 8-1-2023)

18.02.107.11 Requirements for prefabricated buildings.

Building, plumbing, mechanical, fuel gas and electrical installations, structural systems, piping and wiring in prefabricated buildings or buildings which are moved into the city limits shall be made to conform to the requirements of this Code and the technical codes for new work; provided, however, that this provision shall not apply to any structure which complies with the standards and requirements of the Texas Department of Licensing and Regulations for Manufactured Housing or Industrial Housing and Buildings.

(Ord. No. 019528, § 1, 8-1-2023)

18.02.107.12 Manufacturers and fabricators.

When deemed necessary by the building official, he shall make, or cause to be made; an inspection of materials or assemblies at the point of manufacture or fabrication. A record shall be made of every such examination and inspection and of all violations of the technical codes.

(Ord. No. 019528, § 1, 8-1-2023)

18.02.107.13 Reserved.

18.02.107.14 Special inspection and test program.

Special inspection is the monitoring of materials, installation, fabrication, erection and placement of components and connections that require special expertise that are critical to the integrity of the building structure. Special inspections are required to ensure compliance with the approved

construction documents (plans) and standards referenced in the applicable codes. Special inspectors and special inspection agencies shall have the proper certifications to conduct the special inspections detailed in the currently adopted International Building Code edition.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.107.14.1 Special inspections and tests requirements.

Special inspections by certified special inspectors shall be required for the following:

1. Inspection of fabricators—Where fabrication of structural load bearing members and assemblies is being performed.

2. Steel construction—Steel elements of buildings and structures requiring special inspection as required in the currently adopted International Building Code edition.

3. Concrete construction—Verification for concrete construction as identified in the currently adopted International Building Code edition.

4. Masonry construction—Verification for masonry construction as required in the currently adopted International Building Code edition.

5. Wood construction—Fabrication of wood structural elements and assemblies both prefabricated and field assembled as required in the currently adopted International Building Code edition.

6. Soils—Existing conditions and verification of site preparation prior to placement of prepared fill as required in the currently adopted International Building Code edition.

7. Deep driven, cast-in-place and helical pile foundations—Inspection and installation and testing of pile foundations as required in the currently adopted International Building Code edition.

8. Pier foundations—Inspection, installation and testing of pier foundations as required in the currently adopted International Building Code edition.

9. Vertical masonry foundation elements—Inspection and verification as required in the currently adopted International Building Code edition.

10. Sprayed fire resistance materials—Inspection of fire resistive materials applied to structural elements as required in the currently adopted International Building Code edition.

11. Mastic and intumescent fire-resistant coatings—Inspections of mastic and intumescent materials as required in the currently adopted International Building Code edition.

12. Exterior insulation and finish systems (EIFS)—As identified in Section 1704.14 of the 2009 edition IBC.

13. Special cases—Inspections needed in the opinion of the building official because of use of alternate materials, unusual design or use of materials as required in the currently adopted International Building Code edition.

14. Smoke control—Inspections involving testing of ductwork prior to concealment as required in the currently adopted International Building Code edition.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.107.14.2 Special inspectors/agencies.

Special inspectors are required to obtain International Code Council (ICC) certification for the specific discipline they will be inspecting. Organizations that employ special inspectors shall gain accreditation through the International Accreditation Service (IAS), a subsidiary of the ICC.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.107.15 Third party service providers.

18.02.107.15.1 Purpose and authority.

Third party service providers may conduct plan review and inspection services for the building industry to expedite service delivery for commercial or residential development, which may be provided by different entities or individuals and must be all inclusive as identified in Section 18.02.107.15.3. This section establishes the licensing procedure and requirements for qualification as a third party service provider. Any reference in this section to third party service providers shall apply equally to companies and individuals en-

gaged in such services. This section does not apply to the hiring of such companies by the city to provide services relating to potential litigation or to provide services ancillary to compliance with local, state or federal laws. Such hiring shall be done in consultation with the city attorney and in accordance with the applicable requirements of local, state or federal law.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.107.15.2 Procedures for third party service providers.

The City of El Paso operates under the currently adopted edition of the International Building Codes published by the International Code Council (ICC). Third party service providers shall be licensed by the city solely on the basis of their qualification and current certification of inspectors and plans examiners by the International Code Council. Licenses shall be required for residential and commercial services. Services provided by third parties shall include all types of plan review and inspections for residential or commercial projects as licensed by the city. City licenses shall be renewed on an annual basis. Special inspections shall be provided in accordance and compliance with the currently adopted edition of the International Building Code.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.107.15.3 Qualification requirements.

The determination of a potential third party service provider's qualifications shall be based on the criteria set forth below. Third party service providers may also present other information which objectively demonstrates that the potential third party service provider has the capacity to perform plan review and inspections (except special inspections) as required under the provisions of this Code. Third party service providers must submit the following:

1. Third party service provider's history identifying previous experience in conducting residential or commercial plan review and inspection services.

2. Proof of International Code Council certification for each individual who will be performing plan review and/or inspections services as specified below:

a. Residential plan review.

1) Residential plans examiner; and

2) Residential energy inspector/plans examiner; and

3) Accessibility inspector/plans examiner or TAS certification; and

b. Residential inspection.

1) Residential combination inspector; or individual.

2) Building/residential inspector.

3) Plumbing inspector.

4) Electrical inspector.

5) Mechanical inspector.

6) Current State of Texas plumbing inspector license.

c. Commercial plan review.

1) Building plans examiner.

2) Electrical plans examiner.

3) Mechanical plans examiner.

4) Plumbing plans examiner.

5) Commercial energy plans examiner or commercial energy inspector/plans examiner with ASHRAE 90.

6) Accessibility inspector/plans examiner or Texas registered accessibility specialist (TAS).

d. Commercial inspections.

1) Commercial building inspector.

2) Commercial electrical inspector.

3) Commercial mechanical inspector.

4) Commercial plumbing inspector.

5) Fuel gas inspector.

6) Med gas endorsement.

7) Commercial energy inspector or commercial energy inspector/plans examiner with ASHRAE 90.

8) Accessibility inspector/plans examiner or Texas registered accessibility specialist.

9) Current State of Texas plumbing inspector license.

3. Staff resumes including the identification, education, certification, and continuing education completed for each staff member who will be performing third party services.

4. Evidence of commercial liability, property damage liability, vehicle liability and errors and omissions insurance coverage with minimum combined bodily injury (including death), property damage, vehicle, and errors and omissions, limits of not less than one million dollars for each occurrence, and two million dollars annual aggregate. In addition, third party service providers must provide evidence of a bond as required by Section 18.02.04.7 of the El Paso City Code.

5. Any other information in support of the third party service provider's application.

6. Third party plumbing inspection services shall comply with Texas Occupations Code Tit. 18, Ch. 1301, and the Texas State Board of Plumbing Examiners Rules, as applicable and as may be amended. Pursuant to State Plumbing Code Section 1301.255(e), plumbing inspections must be paid directly by the city.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.107.15.4 Scope of services.

Licensed third party service providers shall be required to provide complete site plan review, plan review, and inspection services for residential and commercial projects as determined by the city. These services must include zoning, grading, and site development review, plan review and inspection of private sector projects for which the building official determines that third party services would be appropriate.

Any agreements entered into between an approved third party service provider and the private sector are private contracts to which the City of El Paso is not a party.

Contractors desiring to use third party service providers for plan review/inspection services shall pay, at the time of permit issuance, the city established fees as set forth in Schedule C, as well as any plumbing inspection fees applicable.

Licenses will be renewed every three years using the same criteria identified in Section 18.02.107.15 and available information from previous audits.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.107.15.5 Third party service provider audits.

Third party service providers shall be subject to the same quality review as City of El Paso employees performing the same service. An audit of a third party service provider's annual services including inspections and plan reviews may be conducted by the city to assure that inspections of residential and commercial developments were adequately and accurately performed. Third party service providers will be notified in writing of all audit findings with deficiencies.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.107.15.6 Third party service provider audit process.

The city is authorized to conduct periodic unannounced audits of all services provided under this section. Site as well as plan review and inspection services may be audited. The following shall apply to all third party service providers:

1. Following written notice by the building official of an audit resulting in one or more deficiencies (failure to comply with code requirements), and for each written notice of deficient audit thereafter, the third party service provider shall:

a. Inform the respective builder/contractor of the specific code infraction(s) and the corrections required.

b. Following correction of the deficiencies, the city shall conduct a follow up plan review and/or inspection to assure compliance. The established fee for plan review and/or re-inspection shall be paid.

c. The city shall not be responsible for the cost of any corrections required and/or project delays.

2. Two audits with one or more deficiencies within any one-hundred-eighty-day period shall also result in:

a. A conference with the building official and the third party service provider in an effort to improve the performance of the third party service provider.

b. Prior to performing any further third party services, the third party service provider shall be required to show evidence of process improvements, internal correction procedures, methods, and/or training, and/or staff reassignments as appropriate to prevent recurrence of infraction.

3. Three audits with one or more deficiencies within any one-hundred-eighty-day period shall also result in:

a. Third party service provider being placed on probation for a period of one hundred eighty days.

b. Third party service providers that have been placed on probation more than once in any five-year period shall have their license for third party services terminated and be deemed non-qualified for a two-year period, in reference to subsequent request for qualification solicitations or license renewal or reinstatement.

4. Further audits with one or more deficiencies during the probationary period shall result in:

a. Suspension of third party service provider for a period of one hundred eighty days.

5. A third party service provider suspended pursuant to this section may appeal the building official's decision to the construction board of appeals, pursuant to Chapter 2.30 and Chapter 18.380 of the City Code.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.107.15.7 Third party service provider license fees.

Applicants shall pay at the time of application or renewal a fee as set forth in Schedule C as adopted by the El Paso City Council.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.108 DEMOLITION

18.02.108.1 Demolition of building or structure.

The purpose of this section is to assure greater public safety during demolition activities by establishing the process and setting forth the requirements for obtaining a demolition permit, establishing requirements for demolition including notification to adjacent property owners when applicable and encouraging the salvage and/or recycling of materials. City-ordered demolitions shall be exempt from the requirements of this section.

A. Definitions.

1. Deconstruction means the process of systematically dismantling a structure or portion of a structure in an environmentally, economically and socially responsible manner, aiming to maximize the recovery of materials for reuse and recycling.

2. Demolition means the deconstructing, destroying, razing, tearing down, alteration or wrecking of any structure or removal of any load-supporting structural member of a building or structure together with any related handling operations.

B. Permit required.

1. A demolition permit shall be required before any person proceeds with any of the following activities/work:

2. Level I. The demolition or partial demolition of a single family, duplex, triplex, quadruplex or commercial building under five thousand square feet of the gross floor area being demolished.

3. Level II. The demolition or partial demolition of a commercial building greater than five thousand square feet but less than ten thousand square feet of the gross floor area being demolished.

4. Level III. The demolition or partial demolition of a commercial building greater than ten thousand square feet of the gross floor area being demolished.

C. Fees.

1. A person obtaining a level I demolition permit shall pay the established fee.

2. A person obtaining a level II demolition permit shall pay two hundred percent of the established permit fee.

3. A person obtaining a level III demolition permit shall pay three hundred percent of the established permit fee.

D. Duration.

A demolition permit shall be valid for a consecutive ninety-day period. Every permit issued shall expire under any of the following circumstances:

1. The work authorized by such permit is not commenced within three months from the issue date of the permit;

2. The work authorized by such permit is suspended or abandoned for a period of three months after the time the work is commenced;

3. The permit applicant fails to call for and receive an inspection for any period of three months.

4. Upon completion and successful final inspection of the work authorized by such permit.

5. A permittee holding an unexpired permit may apply for one extension of time for a period of not more than one ninety-day period; provided that the request for extension is made in writing prior to the expiration of the current permit, such extension authorizations shall be made in writing to the building official. There shall be no fee for the extension of an unexpired permit.

6. A completion permit may be obtained for an expired permit within six months of the date of expiration of the original permit. The cost of the completion permit shall be equal to one half the established fees required for a new permit for such work.

E. Application requirements.

1. Emergency demolition. Emergency demolition will be permitted upon provision of:

a. A fire assessment from the fire marshal's office;

b. A structural engineer's assessment of imminent hazard approved by the building official;

c. Court order; or

d. Upon a determination made by the building official pursuant to International Building Code Section 116.1 that the structure or equipment is unsafe and must be taken down and removed or made safe.

Exception: Historic landmark commission approval is not required for a designated structure when ordered by the building and standards commission, or declaration of imminent hazard by the fire marshal or building official.

2. Standard demolition. The applicant shall provide a demolition plan

3. Complete and interior demolition. The applicant shall provide:

a. Scaled survey or site of property clearly labeling limits of proposed demolition.

b. Scaled floor plan of structure clearly labeling area(s) of existing structure.

c. Proposed demolition and/or removal and replacement of materials.

d. Hazardous material/asbestos remediation report.

e. Proof of utility disconnections.

f. Proof of ownership, title deed and/or warranty deed or notarized letter from property owner authorizing demolition.

F. Demolition of property within the Downtown Plan Area.

1. If the property to be demolished is located within a historic district or is a landmark, approval for demolition from the historic landmark commission is required prior to the issuance of a demolition permit and all other application requirements of Section 18.02.108.1E. shall be followed.

Exception: Historic landmark commission approval is not required for a designated structure when ordered by the building and standards commission, or declaration of imminent hazard by the fire marshal or building official.

2. If the property to be demolished is within the Downtown Plan Area, the applicant will be required prior to demolition to:

a. Provide for as-built drawings or photo-documentation.

b. Provide proof of notices sent: If the proposed building to be demolished is three stories or less, the applicant shall provide copies of certified letters to all adjacent property owners and businesses notifying them of the proposed demolition and approximate schedule of events. If the proposed demolition is for a commercial or industrial structure or a residential structure four stories or more, all property owners and business within three hundred feet shall be notified. If the proposed building to be demolished shares a common wall with another building(s) the applicant shall submit a sealed structural engineer's report that verifies that the proposed demolition will not adversely impact adjoining structures.

G. Additional provisions.

1. No wall, chimney or other structural part shall be left at the end of each shift in such condition that it may collapse due to wind, vibration or other cause.

2. Upon the completion of demolition operations, the site shall be completely cleared of rubbish, brush, weeds and other debris. The site must be left free of ponds/ponding areas.

3. Footings/foundations, basement/surface slabs, septic tanks, wells, cesspools, and cisterns shall be completely removed.

Exception: Footings, foundations, basement walls may remain provided that:

a. The site is properly secured by appropriate fencing.

b. Plans sealed by a design professional are submitted at the time of proposed new construction using existing footings, foundations, or basement walls.

c. The plans provide an engineering analysis stating that the footing/foundations are structurally adequate for the intended new structure.

d. An engineering inspection report indicating that the original footings/foundation or other structures that will be utilized have not been disturbed, structurally impaired and/or impacted by the demolition.

4. The applicant shall coordinate with applicable city departments for the blocking of walkways, thoroughfares and alleys to protect the public.

H. Final site preparation/security.

1. The site must be left ready for new construction. All underground utilities, footings, foundations, vaults, basements, etc., must be removed and clean fill must be used to return the site/lot to its original and/or otherwise appropriate elevation consistent with adjoining lots and/or public improvements.

Exception: Footings, foundations, basement walls may remain provided that:

a. The site is properly secured by appropriate fencing.

b. Plans sealed by a design professional are submitted at the time of proposed new construction using existing footings, foundations, or basement walls.

c. The plans provide an engineering analysis stating that the footing/foundations are structurally adequate for the intended new structure,

d. An engineering inspection report indicating that the original footings/foundation or other structures that will be utilized have not been disturbed, structurally impaired and/or impacted by the demolition.

2. Contractor shall return all public improvements to their original and/or improved condition(s).

(Ord. No. 019528, § 1, 8-1-2023)

18.02.111 CERTIFICATES OF OCCUPANCY

18.02.111.1 New building certificate of occupancy.

A certificate of occupancy allows for full occupancy of an entire building or structure when

the entire building or structure is dedicated to one specific use or occupancy type. A new building shall not be occupied or a change made in the occupancy, nature or use of a building or part of a building until the building official has issued a certificate of occupancy. The certificate shall not be issued until the building has passed all required inspections, is in compliance with the technical codes and other applicable laws and ordinances and is released by the building official and the applicant has paid the established fee.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.111.2 Existing building certificate of occupancy.

A certificate of occupancy for any existing building may be obtained by applying to the building official and supplying the information and data necessary to determine compliance with the technical codes for the occupancy intended. Where necessary, in the opinion of the building official, detailed drawings, or a general inspection, or both, may be required. When, upon examination and inspection, it is found that the building conforms to the provisions of the technical codes and other applicable laws and ordinances for such occupancy, a certificate of occupancy shall be issued and the applicant has paid the established fee.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.111.3 Certificates of occupancy for lots with unconditional master building permits.

Certificates of occupancy shall be issued for lots receiving unconditional master building permits as described in Section 18.02.105.15A. of this Code when the structures comply with the requirements of the building and zoning codes, and all subdivision improvements have been completed in accordance with Title 19 (Subdivisions) of this Code and upon payment of the established fee.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.111.4 Certificates of occupancy for lots with conditional master building permits.

Certificates of occupancy may be issued for lots receiving conditional master building permits as described in Section 18.02.105.15B. of this Code provided the applicant has paid the established fee and the following requirements are complied with:

1. The structures comply with the requirements of the building and zoning codes; and
2. The subdivision improvements required under Title 19 (Subdivisions) have been constructed, completed, and if the improvements are public improvements, accepted by the city for maintenance, or the developer provides financial security in accordance with Section 19.08.040 of the City Code for completion of the subdivision improvements; or
3. The subdivision improvements for the approved phase of the subdivision have been constructed, completed, and if the improvements are public improvements, accepted by the city for maintenance and the developer provides financial security in accordance with Section 19.08.040 of the City Code for completion of the remaining subdivision improvements.

(Ord. No. 019528, § 1, 8-1-2023)

18.02.111.5 Temporary Certificate of Occupancy (TCO).

A TCO may be issued that allows for temporary occupancy of an incomplete building upon payment of the established fee and provided that the building has passed the following life safety and service system inspections:

1. Inspections required prior to issuance of a commercial TCO:

   Engineering final, electrical final, fire final, mechanical final, plumbing final, building final.

2. Inspections required for a residential TCO:

   Electrical final, mechanical final, plumbing final, building final, and fire final.

A TCO is valid for thirty days. An extension TCO may be granted for an additional thirty days

upon written request for extension and upon payment of the established fee contained in Schedule C.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.111.6 Reserved.

18.02.111.6.1 Conditional certificate of occupancy (CCO).

A CCO allows for temporary occupancy of a complete or portion of an existing building or structure for an occupancy other than the occupancy for which the building or structure was intended, or for vacant premises as described in this section, provided all life safety requirements have been met for the proposed new occupancy and upon payment of the established fee. A CCO shall not exceed one year.

A CCO for otherwise vacant premises shall be allowed only in specific portions of the street level in buildings within a one-mile radius of the Downtown Plan Area, upon application approval by the building official and upon agreement to the proposed occupancy classification and compliance benchmarks. A CCO for otherwise vacant premises may be extended through a second year with no additional permit fees by the building official, pending a phased compliance plan and expires automatically when applicant vacates the premises.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.111.6.2 Reserved.

18.02.111.7 Certificate of completion.

After the building official inspects the work completed under permit for a building, structure, electrical, fire protection, plumbing, mechanical, fuel gas, or similar system or structure that cannot be occupied, and finds no violations of the provisions of this Code or the technical codes, the building official is authorized to issue a certificate of completion. Such certificate of completion certifies that the work performed under the permit has been satisfactorily completed. The certificate of completion does not authorize the occupancy of any incomplete shell, building or structure.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.111.8 Connection of service utilities.

No person shall make connections from a utility, source of energy, fuel or power to any building or system which is regulated by the technical codes for which a permit is required, until released by the building official, and a certificate of occupancy or completion is issued.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.111.9 Temporary connection.

The building official may authorize the temporary connection of the building or system to the utility source of energy, fuel or power for the purpose of testing building service systems or for use under a temporary certificate of occupancy. Any person receiving authorization under this section shall pay the established fees for installation and inspection.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.111.10 Authority to disconnect service utilities.

The building official shall have the authority to order the disconnection of utility service to the building, structure or system regulated by the technical codes in case of emergency where necessary to eliminate an immediate hazard to life or property. The building official shall notify the serving utility, and whenever possible the owner and occupant(s of the building, structure or service system of the decision to disconnect prior to taking such action. If not notified prior to disconnecting, the owner or occupant of the building, structure or service system shall be notified in writing, as soon as practical thereafter.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.111.11 Plumbing outside city limits.

Water service shall not be furnished to any property outside the city limits having a water

plumbing system installed on or before January 1, 1972, unless such water plumbing system has been inspected, tested and approved in accordance with rules and regulations of the public service board/El Paso Water Utilities (EPWU).

Water service shall not be furnished to any property outside the city limits having a water plumbing system installed after January 1, 1972, unless such water plumbing system has been inspected and all plumbing thereon complies with the requirements of this Code and the technical codes.

Persons receiving permits and inspections under this section shall pay all established fees.

After the public service board or EPWU begins water service to a property outside the city limits, all additional plumbing work done on such property shall comply with this Code and the technical codes and pass the inspections therein required. Such additional plumbing work shall be pursuant to a permit issued upon payment of the established fees.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.111.12 Relations with the El Paso Water Utilities (EPWU Department).

No system of plumbing utilizing a private disposal system as provided in the plumbing code shall be turned on by EPWU until EPWU has received a final approval of such system from the building official.

No existing out-of-city plumbing system as defined in Section 18.02.111.11 until the private sewage (whether individual or community to which the system is connected has been inspected and approved by the building official and notice of such approval has been furnished to EPWU.

Clear water waste from swimming, wading and bathing pools and similar devices and installations may be utilized for irrigation by either surface or subsurface spreading when specifically authorized by the building official.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.111.13 Appeals.

In any case where a decision of the building official, regarding adequacy or quality of public or private improvements, prevents the issuance of a permit or certificate of occupancy, the permit applicant may appeal the decision to the Appeals Officer in accordance with the requirements and procedures of Chapter 2.30 of the City Code.
(Ord. No. 019528, § 1, 8-1-2023; Ord. No. 019762, § 2, 7-22-2025)

18.02.112 CONSTRUCTION SITE WASTE MANAGEMENT REQUIREMENTS

18.02.112.1 Discarded building materials and construction site waste.

Construction site waste must be properly managed and disposed to ensure worker safety, public health and welfare, as well as to reduce risks of injury, pollution, environmental contamination, and ensure storm water protection. Practices such as trash disposal, proper material handling, and spill prevention and clean up measures must be implemented in accordance with El Paso City Code, Title 9 (Health and Safety), Chapter 9.04 (Solid Waste Management) and Texas Administrative Code, Title 30, Chapters 327, 330, and 335.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.113 RESERVED

18.02.114 SEVERABILITY

If any section, subsection, sentence, clause or phrase of this Code or of the technical codes is for any reason held to be unenforceable, such decision shall not affect the validity of the remaining portions of this Code or of the technical codes.
(Ord. No. 019528, § 1, 8-1-2023)

18.02.115 VIOLATIONS AND PENALTIES

Any person, firm, corporation or agent who shall violate a provision of this Code or of the technical codes, or fail to comply therewith, or with any of the requirements thereof, or who shall erect, construct, alter, install, demolish or move any structure, electrical, gas, mechanical or plumb-

ing system, or has erected, constructed, altered, repaired, moved or demolished a building, structure, electrical, gas, mechanical or plumbing system; in violation of a detailed statement or drawing submitted and permitted thereunder, shall be deemed guilty of a misdemeanor and punished by a fine not to exceed two thousand dollars. Each such person shall be deemed guilty of a separate offense for each and every day or portion thereof during which any violation of any of the provisions of this Code or of the technical codes is committed or continued.
(Ord. No. 019528, § 1, 8-1-2023)

Chapter 18.08

BUILDING CODE*

Sections:

18.08.010 Short title.

18.08.020 Adoption.

18.08.030 Section 105.2 Work exempt from permit, amended.

18.08.035 Section 107.2.5.2 Finish Floor Elevation.

18.08.040 Section 202 Definitions, Shell, amended.

18.08.050 Section 310.1 Residential Group R, R-3, amended.

18.08.055 Section 1109.2.1 Family or assisted-use toilet and bathing rooms.

18.08.060 Section 311.4 Required separation for Group S tenants, added.

18.08.070 Section 424.312.2 Fences, added.

18.08.080 Section 501.2 Address identification, amended.

18.08.090 Reserved.

18.08.110 Reserved.

18.08.120 Section 1101.2 Design, amended.

18.08.130 Section 1101.3 Maintenance of Facilities, added.

18.08.140 Section 1101.4 Variances, added.

18.08.150 Section 1107.6.1.1.1 Type A units, amended.

18.08.160 Reserved.

18.08.170 Section 1204.1 Equipment and systems, amended.

18.08.180 Section 1804.8 Excavation Greater Than 5 Feet, added.

18.08.190 Section 2114 Rock Masonry Retaining Walls, Yard Walls and Fences, added.

18.08.200 Section 3107.1 General, amended.

18.08.210 Section 3201.1 Scope, amended.

18.08.220 Section 3305.2 Temporary Facilities, added.

18.08.221 Section 3401.1 Compliance, amended.

18.08.222 Section 3401.2 General, amended.

18.08.230 Appendix C, Group U-Agricultural Buildings, adopted.

18.08.240 Appendix D, Fire Districts, adopted and amended. Added

18.08.250 Appendix E, Supplementary Accessibility Requirements, adopted.

18.08.252 Appendix F, Rodent proofing, adopted.

18.08.254 Appendix G, Flood Resistant Construction, adopted.

18.08.260 Appendix I, Patio Covers, adopted.

18.08.262 Appendix J, Grading, adopted.

18.08.270 Appendix K, Administrative Provisions, adopted.

18.08.280 Appendices.

18.08.290 Conflicting ordinances.

18.08.300 Violations and Penalties.

18.08.010 Short title.

This chapter may be cited as the "Building Code."
(Ord. No. 019528, § 1, 8-1-2023)

18.08.020 Adoption.

The book entitled "International Building Code," 2021 Edition, a copy of which authenticated by the city clerk is on file in the city clerk's

***Editor's note—**Ord. No. 019528, § 2, adopted Aug 1, 2023, amended Ch. 18.08 in its entirety to read as set out herein. The former Ch. 18.08, §§ 18.08.010—18.08.300, pertained to similar subject matter and derived from Ord. No. 18509, § 1, adopted May 31, 2016.

office, is adopted as the building code of the city, as fully as if copied at length in this chapter, but with the changes set forth in this chapter and Chapter 18.02, the Building and Administrative Code of the City of El Paso. Exception: As an alternative, existing buildings undergoing repair, alterations, additions or change of occupancy shall be permitted to comply with the El Paso Existing Building Code Chapter 18.28.
(Ord. No. 019528, § 1, 8-1-2023)

18.08.030 Section 105.2 Work exempt from permit, amended.

International Building Code, 2021 Edition, Section 105.2, Work exempt from permit, Building: is hereby amended to read as follows:

105.2 Work exempt from permit. Exemptions from permit requirements of this code shall not be deemed to grant authorization for any work to be done in any manner in violation of the provisions of this code or any other laws or ordinances of this jurisdiction. Permits shall not be required for the following:

Building:

1. Masonry landscape walls and fences not over forty-two inches high, completely within the subject property and meeting zoning requirements. Where there is a difference in elevation between abutting properties or property lines, the height measurement shall be taken from the high side of the wall, exclusive of retaining walls.

a. Chain link or wrought iron fences not over six feet high, completely within the subject property and meeting zoning requirements.

2. Oil derricks.

3. Retaining walls that are not over 4 feet (1219 mm) in height measured from the bottom of the footing to the top of the wall, unless supporting a surcharge or impounding Class I, II or IIIA liquids.

4. Water tanks supported directly on grade if the capacity is not greater than 5,000 gallons (18,925 L) and the ratio of height to diameter or width is not greater than 2: 1.

5. Sidewalks and driveways not more than 30 inches (762 mm) above adjacent grade, and not over any basement or story below and are not part of an accessible route.

6. Painting, papering, tiling, carpeting, cabinets, counter tops and similar finish work.

7. Temporary motion picture, television and theater stage sets and scenery.

8. Prefabricated swimming pools accessory to a Group R-3 occupancy that are less than 24 inches (610 mm) deep, are not greater than 5,000 gallons (18,925 L) and are installed entirely above ground.

[9]. Swings and other playground equipment accessory to detached one- and two-family dwellings.

[10]. Window awnings in Group R-3 and U occupancies, supported by an exterior wall that do not project more than 54 inches (1372 mm) from the exterior wall and do not require additional support.

[11]. Nonfixed and movable fixtures, cases, racks, counters and partitions not over 5 feet 9 inches (1753 mm) in height.

Electrical:

1. Repairs and maintenance: Minor repair work, including the replacement of lamps or the connection of approved portable electrical equipment to approved permanently installed receptacles.

2. Radio and television transmitting stations: The provisions of this code shall not apply to electrical equipment used for radio and television transmissions, but do apply to equipment and wiring for a power supply and the installations of towers and antennas.

3. Temporary testing systems: A permit shall not be required for the installation of any temporary system required for the testing or servicing of electrical equipment or apparatus.

Gas:

1. Portable heating appliance.

2. Replacement of any minor part that does not alter approval of equipment or make such equipment unsafe.

Mechanical:

1. Portable heating appliance.
2. Portable ventilation equipment.
3. Portable cooling unit.
4. Steam, hot or chilled water piping within any heating or cooling equipment regulated by this code.
5. Replacement of any part that does not alter its approval or make it unsafe.
6. Portable evaporative cooler.
7. Self-contained refrigeration system containing 10 pounds (4.54 kg) or less of refrigerant and actuated by motors of 1 horsepower (0.75 kW) or less.

Plumbing:

1. The stopping of leaks in drains, water, soil, waste or vent pipe, provided, however, that if any concealed trap, drain pipe, water, soil, waste or vent pipe becomes defective and it becomes necessary to remove and replace the same with new material, such work shall be considered as new work and a permit shall be obtained and inspection made as provided in this code.
2. The clearing of stoppages or the repairing of leaks in pipes, valves or fixtures and the removal and reinstallation of water closets, provided that such repairs do not involve or require the replacement or rearrangement of valves, pipes or fixtures.

(Ord. No. 019528, § 1, 8-1-2023)

18.08.035 Section 107.2.5.2 Finish Floor Elevation.

Finish floor elevations shall be set at one foot above the 100 year (1% annual chance) flood elevation for residential and multi-family structures
(Ord. No. 019528, § 1, 8-1-2023)

18.08.040 Section 202 Definitions, Shell, amended.

International Building Code, 2021 Edition, Section 202 Definitions, is hereby amended to read as follows:

Shell: A shell building shall meet the requirements that consist of all exterior walls, foundation, site work, landscaping and zoning, parking requirements, property line firewalls and roof structure. Multi-story shell building shall include elevator floor assemblies, mezzanines (when used), stairwells and elevators. Any mechanical, plumbing or electrical scope of work will be limited to "rough-in" designs for future use. Utilities service connections will be stub outs into the building's service entrance for connection at time of the time of tenant improvements. Shell building shall not be occupied upon completion. However, they must meet all minimum requirements for public works, zoning, land development, sanitation and water, before a certificate of completion is issued. No certificate of occupancy will be issued until landscaping, civil work or building construction is completed.

(Ord. No. 019528, § 1, 8-1-2023)

18.08.050 Section 310.1 Residential Group R, R-3, amended.

International Building Code, 2021 Edition, Section 310.1 Residential Group R, R-3 is hereby amended to read as follows:

R-3 Residential occupancies where the occupants are primarily permanent in nature and not classified as R-1, R-2, R-4 or I, including child care facilities which accommodate six or more children of any age who stay less than 24 hours per day and are permitted under the Zoning Ordinance or personal home care facilities permitted under the Zoning Ordinance.

(Ord. No. 019528, § 1, 8-1-2023)

18.08.055 Section 1109.2.1 Family or assisted-use toilet and bathing rooms.

In assembly and mercantile occupancies, an accessible family or assisted-use toilet room shall be provided. In buildings of mixed occupancy, only those water closets required for the assembly or mercantile occupancy shall provide assisted-use toilet. In recreational facilities where separate-sex bathing rooms are provided, an accessible family or assisted-use bathing room shall be provided.

Fixtures located within family or assisted-use toilet and bathing rooms shall be included in determining the number of fixtures provided in an occupancy.

Exception: Where each separate-sex bathing room has only one shower or bathtub fixture, a family or assisted-use bathing room is not required.

1109.2.1.1 Standard. Family or assisted-use toilet and bathing rooms shall comply with Sections 1109.2.1.2 through 1109.2.1.7.

1109.2.1.2 Family or assisted-use toilet rooms. Family or assisted-use toilet rooms shall include only one water closet one lavatory and one diaper changing station. A family or assisted-use bathing room in accordance with Section 1109.2.1.3 shall be considered a family or assisted-use toilet room. Every new establishment or use shall be required to provide a baby diaper changing station in accordance with the requirements of this section. Each establishment or use shall be required to provide at each floor level containing bathrooms, at least one diaper changing station that is accessible to women, and one that is accessible to men, or a single station accessible to both. Each establishment shall provide signage indicating the location of the baby diaper changing station. Any shopping center, mall or other facility encompassing multiple establishments and having a central directory shall indicate on the directory the location of all stations. A baby diaper changing station shall mean a safe, sanitary and convenient baby diaper changing station, deck, table or similar amenity which is installed or placed in a separate, designated location in an establishment or use subject to the provisions of this section.

Exception: A urinal is permitted to be provided in addition to the water closet in a family or assisted use toilet room.

1109.2.1.3 Family or assisted-use bathing rooms. Family or assisted-use bathing rooms shall include only one shower or bathtub fixture. Family or assisted-use bathing rooms shall also include one water closet and one lavatory. Where storage facilities are provided for separate-sex bathing rooms, accessible storage facilities shall be provided for family or assisted-use bathing rooms.
(Ord. No. 019528, § 1, 8-1-2023)

18.08.060 Section 311.4 Required separation for Group S tenants, added.

International Building Code, 2021 Edition, Section 311.4 Required separation for Group S tenants, is hereby added to read as follows:

311.4 Required Separation for Group S Tenants. Tenants of a Group S occupancy shall be separated from other tenants by 1-hour fire partitions and horizontal assemblies or a Code required fire barrier. Non-fire rated partitions may be used to separate Group S tenants provided no area between partitions rated at 1-hour or more exceeds 3,000 sq. ft. or a sprinkler system is installed
(Ord. No. 019528, § 1, 8-1-2023)

18.08.070 Section 424.312.2 Fences, added.

International Building Code, 2021 Edition, Section 312.2 Fences, is hereby added to read as follows:

312.2 Fences.

312.2.1 Electrified Fences General. To the extent that the construction of an electrified fence does not conflict with the requirements specified herein, such fence shall be constructed or installed in conformance with the specifications set forth in IEC Standard 60335-2-76.

312.2.2 Definition. Electrified Fence—Any fence, barrier or enclosure partially or totally enclosing a building, field or yard, carrying any electrical pulse or charge through any part, section or element thereof.

312.2.3 Restricted Use.

1. The installation of an electrified fence is restricted to the following uses and zoning districts:

a. For control of domestic farm animals in areas zoned and actually utilized for farming or

ranching activities; or for other areas where large domestic animals such as horses or cattle are legally maintained.

b. For the permitted uses of outdoor storage, motor vehicle storage, major utility and recycling facilities, general warehouse, contractor yard and manufacturing within the regional commercial district "C-4".

c. For installation in industrial and manufacturing districts designated as "Q", "P-1", "M-1" "M-2" and "M-3" as defined by Title 20 of the El Paso City Code.

2. Only battery-powered units are acceptable. Units must be approved by a Nationally Recognized Testing Laboratory (NRTL) with final installation acceptable to the Building Official.

3. The installation of an electric fence is prohibited,

a. Within 25 feet of any outdoor area used for the handling of hazardous materials pursuant to the Fire Code, or

b. Within five feet of any public right-of-way.

312.2.4 Permit Required. The installation of an electric fence requires an approved permit with the permit official. It shall be unlawful for any person to install, maintain or operate an electrified fence in violation of the provisions of this section.

1. Applications must include the following:

a. Site plan indicating the location of the electrified fence and perimeter fence.

b. Schematics and load calculations indicating and/or displaying the,

i. Location of the power source,

ii. Materials used for the fence construction,

iii. Location of the regulating and monitoring equipment, and

iv. Location of emergency access, knox box and cut-off switch.

2. A permit shall be obtained and renewed every two years with a notarized statement attached to the renewal application from an authorized representative of the fence or barrier equipment manufacturer indicating the installation is operating in conformance with the original design and complies with acceptable safety standards.

312.2.5 Registration Required. Prior to the installation or use of an electrified fence and upon permit issuance, the permit holder must register the electrified fence with the fire code official to identify the location of said fence and required cut-off switch and knox box in the event that deactivation is required by an authorized public safety official.

312.2.6 Standards.

312.2.6.1 Standards—Electrification. Electric fences or barriers must be designed and certified by an authorized representative of a fence or barrier equipment manufacturer. Upon installation, said representative shall certify the installation meets the following design and safety requirements:

1. AC current shall not be used to energize any electric fence.

2. The energizer for electric fences shall be driven by a commercial storage battery not to exceed 12 volts capacity charged by a solar panel. A commercial trickle charger may augment power source.

3. The electric charge produced by the fence upon contact shall meet the energy output requirements of section 22.108 of the IEC.

4. All ground system cables shall be properly insulated.

5. The controller ground system shall not be connected to any plumbing systems in or out of use and shall be at least 50 feet from other utility and buried water pipes.

6. The fence controller ground wire shall not touch any buildings on site.

7. Fence controller and its ground system shall be at least 50 ft. away from radio and buried telephone wires.

8. An electric fence shall be installed at a minimum clearance from power or telephones lines in accordance with Table BB.1 of the IEC.

9. A lightning diverter (commonly referred to as a lightning arrestor) shall be installed between the fence and the fence controller.

10. A cut-off switch shall be installed capable of disconnecting the fence from the controller in case of emergencies, electrical storms, etc.

11. A knox box shall be installed to provide secure access to the appropriate public safety official to the cut-off switch. The knox box shall be illuminated to a minimum one foot candle.

12. Each energizer shall be connected to its own ground system and must not be connected to any other ground system(s).

13. Two or more energizers shall not be connected to the same fence unless the use of multiple energizers does not increase the overall charge transmitted on the fence and adequate access is provided to the cut-off switch to each energizer.

14. All cabling/wire and connectors shall be of the same material (steel, copper, etc.).

15. All wires shall be separated at minimum clearance in accordance with section 29.101 of the IEC.

16. Barbed or razor wire shall not be used in conjunction with any electric fence system.

312.2.6.2 Standards-Height. Electrified fences shall be a minimum of six (6) feet in height and shall not exceed a maximum often (10) feet in height.

312.2.6.3 Standards—Warning Signs. All electric fences shall have warning signs of reflective material and shall be in accordance with the following requirements:

1. Shall be a minimum of 4 inches by 8 inches in accordance with annex BB of the IEC.

2. All lettering shall be a minimum of one (1) inch high.

3. Shall consist of a yellow background with black inscriptions and kept in good condition to ensure continued visibility.

4. Shall be placed at a maximum of 30 feet distance along the fence with a minimum of two signs for less than a 50-foot length.

5. Signs shall bear the words "Live Wires" or "Electric Fence" in indelible letters in English and Spanish.

312.2.7 Required Barrier(s).

1. No electrified fence shall be installed or used unless it is completely surrounded by a perimeter fence that is not less than six (6) feet in height and no more than eight feet in height in accordance with the provisions of section 20.16.030 of the El Paso City Code.

2. The distance between the electrified fence and required perimeter fence shall be a minimum of four inches at its closest point.

3. The perimeter fence between an electrified fence and an adjacent residential zone shall be a masonry fence.

4. If the masonry fence between an electrified fence and an adjacent residential zone is more than three feet from the electrified fence, there shall be a second perimeter fence installed between the electrified fence and the adjacent residential zone that is no more than three feet from the electrified fence.

5. If a code compliant perimeter fence does not exist, a separate permit shall be obtained for the construction of the perimeter fence that shall be constructed prior to the electrified fence installation pursuant to Title 20 of the El Paso City Code.

6. The area between the perimeter wall or fence and the electrified fence shall be kept clear of shrubbery, weeds, trash and debris.

312.2.8 Hours of activation. An electrified fence shall only be energized during the hours when the general public does not have legal access to the protected property.

312.2.9 Fees. The established fee for a permit to install an electrified fence shall be paid by the applicant at the time of filing an application and upon the renewal of the permit.

312.2.10 Barbed Wire, Farm/Ranch.

1. Barbed wire fences installed in conventional multi-strand configuration may be used for the same purpose, the same area, and under the same conditions outlined in Section 312.2.11

2. Wire shall be securely fastened to durable wooden or metal posts, spaced not to exceed fifteen (15) feet center-to-center, and designed to withstand all loads reasonably expected to be imposed upon them.

3. Gates in such fences shall have solid frames, be conventionally hinged, and shall not swing over public property.

4. The use of barbed wire in conjunction with an electric fence is prohibited.

312.2.11 Barbed Wire Other Than Farm/Ranch.

1. Barbed wire may be used as a topping on walls and fences in areas zoned for commercial and manufacturing uses provided such wire is properly attached and secured to risers or outriggers especially designed for this purpose. Such barbed wire installation shall be placed not less than seven (7) feet above finished grade at any point along the fence, and shall not at any point extend beyond the property line, over the public way, or adjoining property.

2. The use of barbed wire for dwellings or apartments in residential and apartment zones is prohibited.

3. The use of barbed wire in conjunction with an electric fence is prohibited.

4. The use, design and minimum height of barbed wire fence topping shall be determined by the building official for each such installation. Such determination shall be based on the need for barbed wire protection, considering the probable risk or theft or trespass, the character of the neighborhood, and other pertinent factors; the possible hazards to persons; and reasonable consideration of appearance.

312.2.12 Use of Broken Glass. The use of broken glass and similar materials designed to do bodily harm, as a topping for fences and walls is prohibited.
(Ord. No. 019528, § 1, 8-1-2023)

18.08.080 Section 501.2 Address identification, amended.

International Building Code, 2021 Edition, Section 501.2 Address identification is hereby amended to read as follows:

501.2 Premises Identification.

501.2.1 Definitions. For the purposes of administering the numbering of buildings, the following definitions shall apply:

"Building numbering," means those numbers and/or letters as may be needed to identify building(s) at a municipal street address.

"Municipal street address" means the building numbering used in conjunction with the street name and assigned by the Planning Division for the City of El Paso for the purpose of identifying individual properties.

"Prominently displayed" means that which is conspicuously located, readily noticeable, and easily readable from the street during normal daytime atmospheric conditions by the driver of an emergency response vehicle.

"Shopping Mall or Strip Mall" means a building or buildings located on the same lot, containing one (1) or more units, which are utilized by the occupants for business purposes.

501.2.2 Municipal Street Address Identification Required. Building numbering shall be prominently displayed on all buildings for which a municipal street address has been assigned in accordance with the requirements of this Section.

501.2.3 Building Numbering Character Height. Building numbering shall be displayed in characters having a minimum height conforming to the following table:

Distance Building Numbering is Setback from the Street Curb	**Minimum Height**
Less than 100 ft.	8"
Equal to or greater than 100 ft. but less than 150 ft.	10"
Equal to or greater than 150 ft. but less than 200 ft.	12"
Equal, to or greater than 200 ft.	See 501.2.3.1

501.2.3.1 Where the distance of the building numbering located on the nearest building wall is equal to or greater than 200 ft. from the street curb, building numbering shall be located on a permanent sign that is not more than 50 ft. from the street curb and is in accordance with Chapter 20.66. If no other such permanent sign exists, a permanent sign shall be provided so that the building numbering shall be located not more than 50 ft. from the street curb. Such permanent sign shall be in accordance with Chapter 20.66 of the City Code and numbering shall be sized in accordance with 501.2.3.

501.2.3.2 Building Numbering Characters. The characters used for building numbering shall be oriented so that they read from left to right horizontally, are not wrapped around corners. The characters shall be a simple, block lettering style without serifs and shall not be slanted or italicized. The characters shall be designed and mounted to avoid shadows that diminish the readability.

501.2.3.3 Color. The color contrast between the building numbering characters and the background against which they are viewed shall be sharply contrasted and sufficiently distinct to ensure legibility/readability. The contrasting background color shall extend a minimum of 4" above, below, and on both sides of the building numbering without interference from any other building element, blending of color, or border. These contrasting colors shall be very dark on very light or the reverse and shall be subject to the approval of the Fire Code Official.

501.2.3.4 Visibility and Readability. Building numbering shall be installed and maintained so that it is clearly visible and easily readable from the street and not obscured by any obstructions such as, but not limited to, landscaping, signage, vehicles, off-street parking, other buildings or building elements.

501.2.3.5 Building Numbering Location.

1. When the primary public entry to the building fronts on the addressed street, building numbering shall be located within the upper one-fourth of the building, not to exceed 20 feet above the ground, on the building wall facing the addressed street.

2. On buildings where the public entry does not front the addressed street, building numbering shall be located near the primary public entry and contain the name of the addressed street. In addition, building numbering shall be located within the upper one-fourth of the building, not to exceed 20 feet above the ground, on the building wall facing the addressed street in compliance with all requirements of this Chapter.

3. On buildings that have a canopy or other building element fronting the addressed street, numbering shall be located on the canopy or other building element. Such numbering shall be located on the surface facing the addressed street and located equal distance from the top and bottom of the facade. If the canopy or other building element is closer than 50 feet to the addressed street, such numbering shall also be located on the sides of the canopy.

4. If another permanent structure or sign exists; the building numbering shall be centered on the face of the permanent structure or sign. Building numbering provided on a permanent sign shall not be included in the calculation of the allowable sign area.

5. On buildings, canopies and other permanent structures or signs where numbering is to be located, and the building, canopy or other permanent structure fronts the street at an angle, such numbering shall be located on the all sides facing the addressed street.

6. On buildings with frontage of 150 feet or more, building numbering shall be located within the upper one-fourth of the building, not to exceed 20 feet above the ground, on the opposing ends of the building wall fronting on the addressed street in accordance with the requirements of this Chapter.

7. In the event that the location of building numbering complying with this subparagraph does

not result in compliance with Section 501.2.2, the location shall be as directed by the Fire Code Official.

501.2.3.6 Multiple Individual Occupancies. When a building contains multiple individual occupancies, which have the same municipal street address, each occupancy shall be identified by additional numbers and/or letters, a minimum of six (6) inches high located in close proximity to its primary public entry if the primary entry is from the outside of the building. This requirement shall be in addition to the building numbering of the municipal street address located on the building wall or other structure as required in this Chapter.

501.2.3.7 Multiple Buildings at a Municipal Street Address. When there is more than one (1) building at a municipal street address, the building nearest to the addressed street shall display the numbering and/or lettering of the first and last building separated by a hyphen. Each remaining building shall be further identified by displaying distinguishing numbers and/or letters on at least one (1) wall located near the primary public entry for that building. Such numbering shall be subject to the approval of the Fire Code Official.

501.2.3.8 Buildings with Multiple Street Addresses. When there is more than one (1) municipal street address assigned to buildings located on the same lot, each building shall comply with the building numbering requirements. The building nearest the addressed street shall display the building numbering of the first and last municipal street address separated by a hyphen.

501.2.3.9 Additional Building Numbering. The owner of a property may provide additional building numbering beyond the building numbering required by this Section. Such additional building numbering, when located on a surface facing a street other than the addressed street, shall also contain the name of the addressed street in addition to the addressed numbering. Additional building numbering shall not be subject to the other requirements of this Section.

501.2.4 Appeal. The owner of a property may appeal the determination of the location or color for building numbering by the Fire Code Official to the Appeals Officer in accordance with Chapter 2.30 of the City Code.

501.2.5 Administration and Enforcement. The requirements of this Section shall be administered as part of the building permit and inspection process. The certificate of occupancy shall not be issued unless the building numbering has complied with this Section.

501.2.6 Existing Buildings. All existing buildings and buildings for which the permit application was received prior to January 1, 2006, except residential buildings containing not more than four (4) dwelling units, that were in full compliance with the pre-existing ordinance (Ord. 15963 A (part), 2004), shall comply with this Section within one (1) year of the enactment of this ordinance. All other building that have not been in compliance with the pre-existing ordinance (Ord. 15963 A (part), 2004), shall comply with this Section immediately upon enactment. The pre-existing ordinance (Ord. 15963 A (part), 2004) shall remain in full force an effect until the expiration of one (1) year from the enactment of this ordinance.

501.2.7 Enforcement. The Fire Code Official and the Building Official are authorized to issue a notice to correct and a citation to the owner, manager, operator or person who otherwise controls the use of any property on which the building numbering has not been provided as required by this Section. The Fire Code Official or the Building Official may issue one notice to correct. The owner, manager, operator or person who otherwise controls the use of any property must comply with the requirements of a notice to correct within thirty (30) days of the date a notice was issued.

501.2.8 Violation.

A. It shall be unlawful for any person who owns, manages, operates or otherwise controls the use of any premises subject to regulation under this chapter to fail to comply with all of its provisions.

B. Any person violating any provision of this chapter shall be deemed guilty of a misdemeanor

and shall be punished as provided in Sections 114 through 116 of the International Building Code, 2021 Edition.
(Ord. No. 019528, § 1, 8-1-2023)

18.08.090 Reserved.

18.08.110 Reserved.

18.08.120 Section 1101.2 Design, amended.

International Building Code, 2021 Edition, Section 1101.2 Design, is hereby amended to read as follows:

1101.2 Design. Buildings and facilities shall be designed and constructed to be accessible in accordance with this Code, the Texas Accessibility Standards ("TAS") of the Architectural Barriers Act (Chapter 469, Government Code) and the American National Standard of the International Code Council (ICC/ANSI A117.1 2009 Edition).

A. All buildings and structures and their associated sites and facilities including employee work areas shall be made accessible as required by this chapter.

B. The design and construction of accessible building elements shall be in accordance with this chapter and Sections 4.1 through 4.35 of the TAS or its successor and the requirements of this Chapter.

C. TAS, a copy of which, authenticated by the signature of the Mayor and City Clerk, and made a public record by resolution of the City Council, is on file in the City Clerk's Office and except as modified in this Chapter, is hereby adopted and shall be considered an integral part of the Building Code.

Exceptions:

1. Group R3—One- and Two-Family Dwellings. One- and two-family dwellings regulated by the El Paso Residential Code, Chapter 18.10, and their accessory buildings shall be exempt from the requirements of this Section.

2. Group R2 Occupancies. Group R2 Occupancies having not more than four units on a site are exempt from the requirements of this Section.

3. Group R1 occupancies. Group R1 Occupancies that are actually occupied as a residence by the proprietor and that have ten or fewer rooms on a site for rent or hire are exempt from the requirements of this Section.

4. Storage Mezzanines. Mezzanines used solely for storage shall be exempt from the requirements of this Section provided the area of the inaccessible level is less than 2000 square feet.

5. Uninhabitable Spaces. Uninhabitable spaces shall be exempt from the requirements of this Section. For the purposes of this Section, uninhabitable spaces shall mean those spaces accessed only by ladders, catwalks, crawl spaces, very narrow passageways, or non-passenger elevators, and frequented only by service personnel for maintenance purposes.

6. Religious Ritual Places. Places used primarily for religious rituals within either a building or facility of a religious organization such as baptisteries, chancels and/or altars, confessionals and similar places are exempt from the requirements of this Section.
(Ord. No. 019528, § 1, 8-1-2023; Ord. No. 019762, § 3, 7-22-2025)

18.08.130 Section 1101.3 Maintenance of Facilities, added.

International Building Code, 2021 Edition, Section 1101.3, Maintenance of Facilities is hereby added to read as follows:

1101.3 Maintenance of Facilities. Any building, facility, dwelling unit, or site that is constructed or altered to be accessible or adaptable under this Section shall be maintained accessible/adaptable during its occupancy.
(Ord. No. 019528, § 1, 8-1-2023)

18.08.140 Section 1101.4 Variances, added.

International Building Code, 2021 Edition, Section 1101.4, Variances, is hereby added to read as follows:

1101.4 Variances. Any exemptions from or modifications of the requirements of the TAS obtained for any project through a variance granted

by the Texas Department of Licensing and Regulation (TDLR) shall be deemed a variance under this chapter and approval by the Appeals Officer as described in City Code Chapter 2.30 shall not be required. The building official may issue a conditional building permit, pending final determination from TDLR, provided the applicant submits proof that a variance application for the requested exemption or modification has been submitted to TDLR.
(Ord. No. 019528, § 1, 8-1-2023; Ord. No. 019762, § 4, 7-22-2025)

18.08.150 Section 1107.6.1.1.1 Type A units, amended.

International Building Code, 2021 Edition, Section 1107.6.1.1.1 Type A units, is hereby amended to read as follows:

1107.6.2.1.1 Type A units. In Group R-2 occupancies containing more than four (4) dwelling units or sleeping units, at least three (3) percent but not less than one of the units shall be a Type A unit. All units on a site shall be considered to determine the total number of units and the required number of Type A units. Type A units shall be dispersed among the various classes of units. All type A units shall be provided with a roll-in shower and a permanent mounted folding shower seat meeting the specifications and requirements for roll-in showers and mounted folding shower seats in ACC/ANSI 1171.1 — 2003, Section 608.

Exceptions:

1. The number of Type A Units is permitted to be reduced in accordance with Section 1107.7.

2. Existing structures on a site shall not contribute to the total number of units on a site.

(Ord. No. 019528, § 1, 8-1-2023)

18.08.160 Reserved.

18.08.170 Section 1204.1 Equipment and systems, amended.

International Building Code, 2021 Edition, Section 1204.1 Equipment and systems, is hereby amended to read as follows:

1204.1 Equipment and systems. Interior spaces intended for human occupancy shall be provided with active or passive space-heating and cooling systems capable of maintaining an indoor temperature between 68 F (20 C) and 90 F at a point 3 feet above the floor in all habitable spaces. The installation of portable space heaters shall not be used to achieve compliance with this section.

Exception: Interior spaces where the primary purpose is not associated with human comfort.
(Ord. No. 019528, § 1, 8-1-2023)

18.08.180 Section 1804.8 Excavation Greater Than 5 Feet, added.

International Building Code, 2021 Edition, Section 1804.7 Excavation Greater Than 5 Feet, is hereby added to read as follows:

1804.8 Excavation Greater Than 5 Feet. Excavations which will exceed five (5) feet in depth shall provide trench safety systems that meet Occupational Safety and Health Administration (O.S.H.A.) standards. Supporting systems shall be designed by a qualified professional and meet accepted engineering requirements. The building official may require that such supporting system designs be made part of the project drawings and specifications.
(Ord. No. 019528, § 1, 8-1-2023)

18.08.190 Section 2114 Rock Masonry Retaining Walls, Yard Walls and Fences, added.

International Building Code, 2021 Edition, Section 2114 Rock Masonry Retaining Walls, Yard Walls and Fences, is hereby added to read as follows:

2114 Rock Masonry Retaining Walls, Yard Walls and Fences.

2114.1 General.

1. All retaining rock masonry walls, rock yard walls and rock fences shall be so designed as to withstand any normal and special loading which may be expected for the intended use of the structure and no subsequent change of use shall be permitted without provisions for the additional loading imposed by such new uses. For the purpose of this section, fences are further defined as

free-standing structures supporting no vertical weight other than the weight of the materials used in the construction of the fence and resisting no externally applied horizontal loadings other than wind or earthquake forces. Freestanding masonry sign pylons shall be classified as fences.

2. Rock masonry walls used in whole or in part for earth retention, in excess of 24 inches in height, shall be provided with adequate footings of reinforced concrete. Rock walls and fences, which due to inadequate or improper design or deterioration, show indications of becoming unstable or unsafe shall, be considered unsafe. Unsafe walls and fences shall be abated by repair and rehabilitation or by demolition.

3. If a wall is proposed to be built, constructed, or repaired on a common property line, written approval of adjoining property owners must be submitted with the application for a building permit. If the City is the adjoining property owner, written approval of the Zoning Administrator must be requested and submitted with the permit application.

2114.2 Retaining Walls. Permanent excavations with a grade separation exceeding twenty-four (24) inches on a vertical line, as opposed to embankments along the natural angle of repose of the soil material, that are retained with masonry shall have the masonry designed and constructed within the provisions of this chapter. Both residential and non-residential construction shall comply with this section.

2114.2.1 Design and Stability.

1. Walls used to retain more than four (4) feet of earth shall be designed by a registered professional engineer.

2. Walls shall be analyzed as gravity type structures. Native rubble masonry construction spanning between buttresses may be considered as having a flexural tensile/compressive strength of fifteen (15) PSI and an axial compressive strength not to exceed sixty (60) PSI. The effective width (thickness) dimensions for structural strength and stability shall be reduced by six (6) inches unless the wall is constructed utilizing a cast-in-place concrete core to ensure solid construction.

3. Foundation concrete shall be effectively bonded to the supported native stone rubble masonry in order to enable the system to perform as an integral composite unit. Bonding may be accomplished by the use of stones twelve (12) inches or larger in dimension placed in the plastic concrete of the foundation to obtain a minimum of six (6) inch embedment with a six (6) inch projection to bond with the native stone rubble masonry constructed above.

4. Externally applied loadings acting on retaining structures shall be those computed from design conditions but shall be no less than required under Chapter 16 of this Code. Parking areas limited to automobiles and other light vehicles shall require a minimum fifty (50) PSF uniform surcharge loading. A minimum of two hundred fifty (250) PSF uniform surcharge loading or AASHTO Lane Loading (whichever is greater) shall be required for parking areas subject to heavy vehicles.

2114.2.2 Materials.

1. Concrete, reinforcing steel and native stone, shall conform to the requirements of Chapters 19 and 21 of this Code. Structural concrete for foundations shall have a minimum twenty-eight (28) day compressive strength of two thousand five hundred (2500) PSI. Concrete for core fill of gravity retaining walls shall have a minimum twenty-eight (28) day compressive strength of two thousand (2000) PSI.

2. Mortar shall have a minimum twenty-eight (28) day compressive strength, of one thousand eight hundred (1,800) PSI when averaged over three (3) two (2) inch cubes of three (3) three (3) by six (6) inch cylinders in accordance with ASTM C109 or ASTM C780 and shall not contain more than fifteen (15) pounds of ASTM C207, Type S hydrated lime per cubic foot of mortar when mixed by volume. The building official may require submission of test reports confirming compliance with these requirements.

2114.2.3 Construction.

1. Foundations shall bear on native undisturbed soil capable of sustaining the load imparted upon it. Subject to the approval of the building official.

2. Foundation may be built upon mechanically compacted soil (native soils with increased densification or engineered fill materials) upon submittal of evidence that the proposed loadings will be adequately supported.

3. Adequate provisions shall be made to eliminate hydrostatic pressure buildup through the use of a free-draining backfill material over an underground water collection system that will drain through the wall and above the foundation in order to ensure stability of the foundation supporting soil. Random pattern weep holes shall not be considered as sufficient to accomplish required drainage. Retaining structures retaining less than four (4) feet of earth are not required to provide the above drainage system.

4. Foundations must bear a minimum of two (2) feet below finish grade level or one (1) foot into native undisturbed materials satisfactory for bearing (on the low side of the retaining structures) whichever provides the lowest elevation.

2114.2.4 Drawings and Specifications. All structures governed under this section shall be required to submit drawings in accordance with Chapter 18.02 Administrative Code. Such drawings shall include the following:

1. Theoretical calculated soil pressures at the toe and heel of the wall foundation.

2. Factor of safety against horizontal sliding and overturning (tipping) equal to or greater than 1.5.

3. Uniform surcharge loading and soil unit weight used in analysis and design (PCF).

4. Line or strip loadings (PLF) and locations with respect to wall.

5. Assumed unit weight of native stone rubble masonry construction (PCF).

6. Wall thickness and height dimensions with relative positioning for yard wall extensions, retained heights, base widths and foundations.

7. Locations of construction (through-wall) joints, changes in foundation bearing elevations, positioning, extent and construction of underground drainage against the retaining structure.

2114.3 Yard Walls and Fences. Yard walls and fences of masonry materials shall be considered as non-bearing walls and shall be supported either horizontally or vertically by intersecting fences, pilasters, monolithic columns, integral, with the fence construction of sufficient strength and stability to provide the required structural support. The minimum thickness shall be sufficient to resist all normal vertical and horizontal loads applied to the fence.

2114.3.1 Masonry walls over six (6) feet in height shall be designed as a structural wall by a licensed professional engineer and provided with adequate footings. The design will be reviewed by the building official.

2114.3.2 Design and Stability.

1. The unsupported height to thickness (KH/t) or length to thickness (KL/t) shall not exceed 40, where, K=2.0 for cantilevered conditions, and 1.0 for both ends being supported:

a. H = Height of fence above foundation

b. L = Horizontal distance between stiffening elements

c. t = Thickness of fence

2. In native stone rubble masonry walls with "no mortar" finishes, three (3) inches shall be deducted from the thickness of the fence for each face where this finish is used, when computing the minimum thickness for KH/t, KL/t and structural stability requirements.

3. Lateral support (stiffening elements) shall be provided by intersecting fences, pilasters, monolithic columns integral with the fence construction or other vertical members of sufficient strength and stability to provide the required structural support.

4. Masonry fences, including native stone rubble, shall have each wythe through-bonded with native stone rubble masonry having through-bond stones at a maximum spacing of three (3) feet vertically and three (3) feet horizontally.

5. Adequate strength, and stability to resist overturning, and other stresses for externally applied horizontal loads, shall be provided to the satisfaction of the building official and shall conform to accepted engineering design principles. Wind loading and shape factors shall be as set forth in Chapter 12 of this Code.

2114.3.3 Materials.

1. All materials shall be in accordance with Chapter 21.

2. Masonry fences, including native stone rubble, shall be laid in Type M, S, or N mortar.

3. Masonry fences, including native stone rubble, shall be provided with a reinforced concrete foundation in accordance with the approved subdivision design standards of the City.

(Ord. No. 019528, § 1, 8-1-2023)

18.08.200 Section 3107.1 General, amended.

International Building Code, 2021 Edition, Section 3107 Signs, is hereby amended to read as follows:

3107.1 General. Signs shall comply with the Zoning Ordinance and shall be designed, constructed and maintained in accordance with this Code.

(Ord. No. 019528, § 1, 8-1-2023)

18.08.210 Section 3201.1 Scope, amended.

International Building Code, 2021 Edition, Section 3201.1 Scope, is hereby amended to read as follows:

3201.1 Scope. The use of public property or any portion thereof, shall be in accordance with the City Charter, Section 3.18 and the provisions of this Chapter.

(Ord. No. 019528, § 1, 8-1-2023)

18.08.220 Section 3305.2 Temporary Facilities, added.

International Building Code, 2021 Edition, Section 3305.2 Temporary Facilities, is hereby added to read as follows:

3305.2 Temporary Facilities. Adequate sanitary facilities for the convenience of all workmen shall be provided according to Table 3305.1. Required facilities shall be located not more than one hundred (100) feet from the construction site, and shall not be within sixty (60) feet of any occupied structure, unless the occupant of such structure consents, or unless it is impracticable to locate the facilities the required minimum distance from the structure. Existing facilities owned by others may be used provided permission for their use is obtained and only if such facilities comply with the requirements or this section.

3305.3 Facilities shall be kept in a clean and sanitary condition throughout the duration of the work. The temporary workman's toilet shall be enclosed, screened, and weatherproofed and shall be connected to a sewer. Upon removal of the temporary facilities, the sewer connections shall be removed and the sewer capped. In lieu of connecting to a sewer, the temporary facility may be a portable, enclosed, chemically treated, tank-tight unit.

Table 3305.1 Number of Employees Minimum Number of Toilet Facilities	
If Serviced Once Per Week*	
1—10	1
11—20	2
21—30	3
31—40	4
Over 40	1 additional facility for each 10 additional employees
If serviced more than once per week*	
1—15	1
16—35	2
36—55	3
56—75	4
76—95	5
Over 95	1 additional facility for each 20 additional employees
*"Servicing" refers to the emptying of waste and the cleaning of the toilet facility. A camp equipped with flush toilets shall meet the standard for "minimum number of toilet facilities if serviced more than once per week".	

(Ord. No. 019528, § 1, 8-1-2023)

18.08.221 Section 3401.1 Compliance, amended.

International Building Code, 2021 Edition, Section 3401.1 Compliance, is hereby amended to read as follows:

3401.1 Compliance. Alterations or repairs to existing buildings and structures shall comply with the provisions for alterations or repairs in the International Existing Building Code, International Fire Code, International Fuel Gas Code, International Mechanical Code, International Plumbing Code, International Property Maintenance Code, International Private Sewage Disposal Code, International Residential Code and NFPA 70. Any alterations or repairs to existing structures made solely in order to improve accessibility shall comply with the provisions for alterations or repairs in this Code, provided however, that nothing in this Code shall require the entire existing structure to be brought into current code compliance. Any exterior site modifications that are required by this Code as a result of the alterations or repairs may be deferred for a period of up to 5 years provided however, that such are not required by Federal or State law.
(Ord. No. 019528, § 1, 8-1-2023)

18.08.222 Section 3401.2 General, amended.

International Building Code, 2021 Edition, Section 3401.2 General, is hereby amended to read as follows:

33401.2 General. Additions to existing buildings or structures shall comply with the requirements of this code for new construction. Any addition to existing structures made solely to improve accessibility shall comply with the provisions for new construction in this Code, provided however, that nothing in this Code shall require the remaining existing structure to be brought into current code compliance. Any exterior site modifications that are required as a result of such addition may be deferred for a period of up to 5 years.
(Ord. No. 019528, § 1, 8-1-2023)

18.08.230 Appendix C, Group U-Agricultural Buildings, adopted.

International Building Code, 2021 Edition, Appendix C, Group U-Agricultural Buildings, is hereby adopted in its entirety.
(Ord. No. 019528, § 1, 8-1-2023)

18.08.240 Appendix D, Fire Districts, adopted and amended. Added

International Building Code, 2021 Edition, Appendix D, Fire Districts, is hereby adopted and Sections D101.1.1.1 is hereby added to read as follows: The Fire District shall include such territory as defined herein.

D101.1.1.1 Fire District No. 1. Fire District No. 1 shall include the following portion of the City of El Paso, which is more particularly described by metes and bounds, as follows:

Beginning at the intersection of the east line of Santa Fe Street with the south line of Missouri Street; Thence northeasterly along the south line of Missouri Street to the west line of Campbell Street; Thence southeasterly and southerly along the west line of Campbell Street to the north line of Overland Street; Thence westerly along the north line of Overland Street to the west line of El Paso Street; Thence southerly along the west line of El Paso Street to the north line of Overland Street; Thence westerly along the north line of Overland Street to the east line of Santa Fe Street; Thence northerly and northwesterly along the east line of Santa Fe Street to the point of beginning at the south line of Missouri Street.
(Ord. No. 019528, § 1, 8-1-2023)

18.08.250 Appendix E, Supplementary Accessibility Requirements, adopted.

International Building Code, 2021 Edition, Appendix E, Supplementary Accessibility Requirements, is hereby adopted in its entirety.
(Ord. No. 019528, § 1, 8-1-2023)

18.08.252 Appendix F, Rodent proofing, adopted.

International Building Code, 2021 Edition, Appendix F, Rodent Proofing, is hereby adopted in its entirety.
(Ord. No. 019528, § 1, 8-1-2023)

18.08.254 Appendix G, Flood Resistant Construction, adopted.

International Building Code, 2021 Edition, Appendix G, Flood Resistant Construction, is hereby adopted in its entirety.
(Ord. No. 019528, § 1, 8-1-2023)

18.08.260 Appendix I, Patio Covers, adopted.

International Building Code, 2021 Edition, Appendix I, Patio Covers, is hereby adopted in its entirety.
(Ord. No. 019528, § 1, 8-1-2023)

18.08.262 Appendix J, Grading, adopted.

International Building Code, 2021 Edition, Appendix J, Grading, is hereby adopted in its entirety.
(Ord. No. 019528, § 1, 8-1-2023)

18.08.270 Appendix K, Administrative Provisions, adopted.

International Building Code, 2021 Edition, Appendix K, Administrative Provisions, is hereby adopted in its entirety.
(Ord. No. 019528, § 1, 8-1-2023)

18.08.280 Appendices.

International Building Code, 2021 Edition, Appendices.

The appendices unless specifically adopted or referenced are retained as administrative guidance aids.
(Ord. No. 019528, § 1, 8-1-2023)

18.08.290 Conflicting ordinances.

All ordinances and parts of ordinances in conflict with the provisions of this chapter are hereby repealed.
(Ord. No. 019528, § 1, 8-1-2023)

18.08.300 Violations and Penalties.

Any person, firm, corporation or agent who shall violate a provision of this Code or of the technical codes, or fail to comply therewith, or with any of the requirements thereof, or who shall erect, construct, alter, install, demolish or move any structure, electrical, gas, mechanical or plumbing system, or has erected, constructed, altered, repaired, moved or demolished a building, structure, electrical, gas, mechanical or plumbing system; in violation of a detailed statement or drawing submitted and permitted thereunder, shall be deemed guilty of a misdemeanor and punished by a fine not to exceed two thousand dollars. Each such person shall be deemed guilty of a separate offense for each and every day or portion thereof during which any violation of any of the provisions of this Code or of the technical codes is committed or continued.
(Ord. No. 019528, § 1, 8-1-2023)

Chapter 18.10

RESIDENTIAL CODE*

Sections:

18.10.010 Short title.

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18.10.050.1 Section R302.1 Exterior walls, amended.

18.10.060 Section R303.10 Required heating, amended.

18.10.070 Reserved.

18.10.080 Section R313 Automatic Fire Sprinkler Systems, deleted.

18.10.090 Section R319 Site Address, amended.

18.10.100 Section R320 Accessibility, deleted.

18.10.110 Section R506.1 General, amended.

18.10.120 Section R802.10.2 Design, amended.

18.10.130 Reserved.

18.10.140 Section M1201.2 Application, amended.

18.10.150 Section M1413 Evaporative Cooling Equipment, amended.

18.10.155 Section M1601.1 (9), added.

18.10.160 Section G2404.1.2 Manufactured homes, added.

18.10.170 Section G2412.2 (401.2) Liquefied petroleum gas storage, amended.

18.10.180 Section G2412.11 Meter location, added.

18.10.190 Section G2415.3.1 Prohibited locations, added.

18.10.200 Section G2417.4 (406.4) Test pressure measurement, amended.

18.10.210 Section P2501.2 Application, amended.

18.10.220 Section P2602.1 General, amended.

18.10.230 Section P2603.5.2 Protection of Water Service Entrance, added.

18.10.240 Section P2603.5.3 Plumbing within exterior walls, added.

18.10.250 Section P2709.2 Lining required, amended.

18.10.260 Section P2709.2.3 Hot-mopping, deleted.

18.10.270 Reserved.

18.10.280 Section P2903.3.3 Accessibility, added.

18.10.290 Section P2903.12 Under concrete slabs, added.

18.10.300 Reserved.

18.10.301 Section P3005.2.3 Building drain and building sewer junction, amended.

18.10.310 Part VIII Electrical, deleted.

18.10.311 Appendix AA, Sizing and Capacities of Gas Piping.

18.10.312 Appendix AB, Sizing of Venting Serving Appliances Equip with Draft Hoods, Category I Appliances, and Appliances listed for Use with Type B Vents.

18.10.313 Appendix AC, Exit Terminals of Mechanical Draft and Direct-Vent Venting Systems.

18.10.320 Appendix AE, Manufactured Housing Used as Dwellings, adopted.

***Editor's note**—Ord. No. 019528, § 3, adopted Aug 1, 2023, amended Ch. 18.10 in its entirety to read as set out herein. The former Ch. 18.10, §§ 18.10.010—18.10.400, pertained to similar subject matter and derived from Ord. No. 18510, § 1, adopted May 31, 2016.

18.10.321 Appendix AG, Piping Standards for Various Applications.

18.10.330 Section AE101.1 General, amended.

18.10.340 Reserved.

18.10.350 Appendix AH, Patio Covers, adopted.

18.10.360 Appendix AK, Sound Transmission, adopted.

18.10.361 Appendix AM, Home Day Care—R-3 Occupancy.

18.10.362 Appendix AN, Venting Methods.

18.10.363 Appendix AP, Sizing of Water Piping Systems.

18.10.364 Appendix AQ, Tiny Houses.

18.10.365 Appendix AR, Light Straw Construction.

18.10.366 Appendix AS, Strawbale Construction.

18.10.367 Appendix U, Solar ready Provisions—Detached One & Two Family Dwellings, Multiple Single Family Dwellings (Townhouses)

18.10.370 Reserved.

18.10.380 Appendices.

18.10.390 Conflicting ordinances.

18.10.400 Violations and Penalties.

18.10.010 Short title.

This chapter may be cited as the "Residential Code."
(Ord. No. 019528, § 1, 8-1-2023)

18.10.020 Adoption.

The book entitled "International Residential Code, For One- and Two-Family Dwellings" 2021 Edition, a copy of which authenticated by the City Clerk is on file in the City Clerk's Office, is adopted as the Residential Code of the City, as fully as if copied at length in this chapter, but with the amendments set forth in this chapter and Chapter 18.02, the Building and Administrative Code of the City of El Paso.
(Ord. No. 019528, § 1, 8-1-2023)

18.10.030 Section R101.2 Scope.

International Residential Code, 2021 Edition, R101.2 Scope, is hereby adopted in its entirety.
(Ord. No. 019528, § 1, 8-1-2023)

18.10.040 Section R105.2 Work exempt from permit.

Exemption from permit requirements of this code shall not be deemed to grant authorization for any work to be done in any manner in violation of the provisions of this code or any other laws or ordinances of this jurisdiction. Permits shall not be required for the following construction work:

Building:

1. One-story detached accessory storage building, canopy or structure, located in the rear yard, less than two hundred square feet in floor area and not within 5 feet of another structure, eave to eave. This exemption shall be restricted to only one accessory building within a site.

2. Masonry landscape walls and fences not over forty-two inches high, completely within the subject property and meeting zoning requirements. Where there is a difference in elevation between abutting properties or property lines, the height measurement shall be taken from the high side of the wall, exclusive of retaining walls.

a. Chain link or wrought iron fences not over six feet high, completely within the subject property and meeting zoning requirements.

3. Concrete walks, slabs on grade and driveways not more than thirty inches above grade, that are not over a basement or story below; and that will not serve as foundation or structural support for future construction, and are not located in public right-of-way.

4. Ordinary minor nonstructural repair work such as painting, papering, siding and similar finish work.

5. Movable cases, cabinets, counters, and partitions not over five feet nine inches high that do not establish a corridor.

6. Swimming pools, wading pools or ponds that are in-ground or above ground containing a body of water less than twenty-four inches in depth and less than five thousand gallons of water.

7. Replacement of less than twenty-five percent of existing roof covering on residential structures only.

8. Swings and other playground equipment.

Mechanical:

1. Portable heating appliances.

2. Portable ventilation equipment.

3. Portable cooling units.

4. Steam, hot or chilled water piping within any heating or cooling equipment regulated by the technical codes.

5. Replacement of any part which does not alter its approval or make it unsafe.

6. Portable evaporative coolers.

7. Self-contained refrigeration systems containing ten pounds (4.54 kg) or less of refrigerant and actuated by motors of one horsepower (746 W) or less.

Electrical:

1. Wiring devices or equipment installed by telephone, telegraph or other public service corporations used solely for the transmission of two-way communication.

2. Portable appliances or devices conforming to the electrical code, for operation from a receptacle outlet, provided such appliances are rated at no more than eighty percent of the branch circuit overprotective device.

3. Replacing or repairing flash or snap switches, receptacles, drop cords, replacing fuses, changing lamp sockets, or any other minor repairs of joints in wiring, fixtures, devices or equipment.

4. Ceiling fans, light fixtures, receptacle outlets or similar devices added onto an existing electrical circuit which has adequate capacity for the additional load in a one- or two-family residence; provided, however, that the work is performed by:

a. A homeowner, on property that is their primary residence; or

b. A master, journeyman or maintenance electrician licensed in accordance with Section 18.02.104.6.

Plumbing:

1. The stopping of leaks in drains, water, soil, waste or vent pipe; provided, however, that if any concealed trap, drainpipe, water, soil, waste or vent pipe becomes defective and it becomes necessary to remove and replace the same with new material, such work shall be considered as new work and a permit shall be obtained and inspection made as provided in this code.

2. The clearing of stoppages or the repairing of leaks in pipes, valves or fixtures, and the removal and reinstallation of water closets, provided such repairs do not involve or require the replacement or rearrangement of valves, pipes or fixtures.

(Ord. No. 019528, § 1, 8-1-2023)

18.10.050 Section R301.2 Climatic and geographic design criteria, amended.

International Residential Code, 2021 Edition, Section R301.2 Climatic and Geographic Design Criteria is hereby amended by completing Table 301.2(1), Climatic and Geographic Design Criteria, to read as follows:

Table R301.2(1)
Climatic and Geographic Design Criteria

Ground Snow Load	Wind Design				Seismic Design Category[f]	Subject To Damage From			Ice Barrier Underlayment Required[h]	Flood Hazards[g]	Air Freezing Index[i]	Mean Annual Temp[j]
	Speed[d] (mph)	Topographic effects[k]	Special wind region[l]	Windborne debris zone[m]		Weathering[a]	Frost line depth[b]	Termite[c]				
5 PSF	105	No	No	No	C	Negligible	6"	Moderate to Heavy	No	Municipal Code Sec. 18.60	1500	75° F

Manual J Design Criteria							
Elevation	Altitude Correction Factor	Coincident wet bulb	Indoor winter design dry-bulb temperature	Indoor winter design dry-bulb temperature	Outdoor winter design dry-bulb temperature		Heating temperature difference
3918	0.87	64°	72°	72°	25°	47°	
Latitude	Daily Range	Indoor summer design relative humidity	Summer Design Grains	Indoor summer design dry-bulb temperature	Outdoor summer design dry-bulb temperature	Cooling temperature difference	
31°	High (more than 25°F)	75° (50% R.H.)	-26	75°	98°	23°	

(Ord. No. 019528, § 1, 8-1-2023)

18.10.050.1 Section R302.1 Exterior walls, amended.

International Residential Code, 2021 Edition, Section R302.1, Exterior walls, is hereby amended to add the following exceptions to read as follows:

6. Zero lot line properties where all of the following apply:

a. A minimum of 10 feet is provided between structures; and

b. Glazing is limited to a height of not less than 14 feet from grade level; and

c. Glazing is not more than 10% of the wall; and

d. Openings are prohibited; and

e. Where eaves are present they shall not extend more than 12 inches from the wall (including any required gutters) and eaves shall be fire rated.

7. Where all structures are provided with sprinkler systems.

(Ord. No. 019528, § 1, 8-1-2023)

18.10.060 Section R303.10 Required heating, amended.

International Residential Code, 2021 Edition, Section R303.8, Required heating, is hereby amended to read as follows:

R303.10 Required heating and cooling. Interior spaces intended for human occupancy shall be

provided with active or passive space-heating and cooling systems capable of maintaining an indoor temperature between 68 F (20 C) and 90 F at a point 3 feet above the floor and 2 feet from exterior walls in all habitable spaces. The installation of portable space heaters shall not be used to achieve compliance with this section.
(Ord. No. 019528, § 1, 8-1-2023)

18.10.070 Reserved.

18.10.080 Section R313 Automatic Fire Sprinkler Systems, deleted.

International Residential Code, 2021 Edition, Section R313, Automatic Fire Sprinkler Systems, is hereby deleted in its entirety.
(Ord. No. 019528, § 1, 8-1-2023)

18.10.090 Section R319 Site Address, amended.

International Residential Code, 2021 Edition, Section R319, Site Address, is hereby amended to read as follows:

R319 Site Address.

R319.1 Building Numbering.

R319.1.1 Definitions.

For the purpose of administering the numbering of buildings, the following definitions shall apply:

1. "Building Numbering" means those numbers and/or letters as may be needed to identify building(s) at a municipal street address.

2. "Municipal Street Address" means the building numbering used in conjunction with the street name and assigned by the Planning Division of the City of El Paso for the purposes of identifying individual properties.

3. "Prominently Displayed" means that which is uniformly located, readily noticeable, and easily readable from the street during normal daytime atmospheric conditions by a person having normal vision.

R319.1.2 Municipal Street Address Identification. Building numbering shall be displayed on all buildings for which a municipal street address has been assigned. In order to provide for the prominent display and uniform location of municipal street addresses, residential building numbering shall comply with the following:

1. Building numbering shall be displayed in characters having a minimum height of four (4) inches.

2. For properties fronting on a street with curbs, building numbering shall be mounted or painted on the face of the curb in close proximity to the entry driveway. In the case of a corner property fronting on two streets with the driveway located on the street that is not the street name of the municipal street address, the building numbering shall be mounted or painted in a prominent location on the face of the curb fronting on the addressed Street.

3. For other properties, building numbering shall be located on the building wall fronting the addressed street or on another permanent structure that fronts on the addressed street and is closer to the street than the building wall.

4. It is recommended, but not required, that building numbering for residential buildings meet the requirements of building numbering for other buildings described in Chapter 18.08.

R319.1.3 Administration and Enforcement. The requirements of this Section shall be administered as part of the building permit and inspection process. The building official shall refuse the issuance of a final inspection and certificate of occupancy unless the building numbering has been provided as required by this Section.

R319.1.4 Alternate Building Numbering Location. The building official shall be authorized to approve alternate location(s) for building numbering required under this Section when the owner of the property satisfactorily demonstrate that the alternate location(s) provide(s) an equivalent degree of visibility and readability.
(Ord. No. 019528, § 1, 8-1-2023)

18.10.100 Section R320 Accessibility, deleted.

International Residential Code, 2021 Edition, Section R320, Accessibility, is hereby deleted in its entirety.
(Ord. No. 019528, § 1, 8-1-2023)

18.10.110 Section R506.1 General, amended.

International Residential Code, 2021 Edition, Section R506.1, General, is hereby amended to read as follows:

R506.1 General. Concrete slab-on-ground floors shall be a minimum of 3.5 inches (89 mm) (for expansive soils, see Section R403.1.8). The specified compressive strength of concrete shall be as set forth in Section R402.2.

Slabs shall be constructed with control joints having a depth of at least one-fourth the slab thickness, and joints shall be spaced at intervals not more than 30 feet in each direction and slabs not rectangular in shape shall have control joints across the slab at points of offset, if offset exceeds 10 feet.

Exception: Control joints are not required or may exceed 30-foot intervals where welded wire fabric or equivalent is provided in accordance with Table 506. The welded fabric or equivalent material shall be placed at mid-depth of the slab or 2 inches from the top surface for slabs more than 4 inches in thickness.

Table 506

Maximum Dimension of Slab or Distance Between Control Joints (Feet) Slab Thickness (Inches)						WWF Wire Spacing (Inches)	WWF Wire Size Designation
3.5	4.0	4.5	5.0	5.5	6.0		
42	36	32	29	26	24	6x6	W1.4 x W1.4
59	52	42	42	38	35	6x6	W2.0 x W2.0
86	75	60	60	55	50	6x6	W2.9 x W2.9

Values in table are based on reinforcement with yield strength of 65,000 psi.
(Ord. No. 019528, § 1, 8-1-2023)

18.10.120 Section R802.10.2 Design, amended.

International Residential Code, 2021 Edition, Section R802.10.2 Design, is hereby amended to add the following sentence at the end of the section, to read as follows:

R802.10.2 Design. The truss design drawings shall be prepared, signed, and sealed by a registered professional engineer, licensed in Texas.
(Ord. No. 019528, § 1, 8-1-2023)

18.10.130 Reserved.

18.10.140 Section M1201.2 Application, amended.

International Residential Code, 2021 Edition, Section M1201.2 Application, is hereby amended to read as follows:

M1201.2 Application. In addition to the general administrative requirements of Chapter 18.02, Building and Construction Administrative Code, the provisions of this Chapter shall also apply to the requirements of Chapters 13 through 24.
(Ord. No. 019528, § 1, 8-1-2023)

18.10.150 Section M1413 Evaporative Cooling Equipment, amended.

International Residential Code, 2021 Edition, Section M1413, Evaporative Cooling Equipment, is hereby amended to read as follows:

M1413 Evaporative Cooling.

M1413.1 General. Every evaporative cooler installed in, on or adjacent to any building as a part of a cooling or air conditioning system shall comply with these provisions.

M1413.2 Location.

M1413.2.1 No evaporative cooler shall be installed so as to obstruct any required means of egress nor reduce passage of required light and air.

M1413.2.2 Evaporative cooler installations that extend beyond the exterior line of a structure shall comply with Building Code and Zoning Regulations as to allowable projection and overhead clearance. Evaporative cooler structures which project

more than eighteen inches (18") into a traveled right-of-way shall maintain a minimum clearance of fourteen feet (14') above grade.

M1413.3 Materials of Construction. M1413.3.1 All evaporative cooler blowers and cabinets, including pan, corner posts, top and pad frames, shall be constructed of non-combustible materials or approved plastics as defined below. Evaporative pads and interior water circulatory systems need not be of non-combustible materials.

M1413.3.2 Approved Plastics. Approved plastic or reinforced plastic materials shall be those which are classified 94-5V in accordance with Underwriters Laboratory Test 94-5V "Vertical Burning Test for Classifying Materials".

M1413.3.3 Evidence of Compliance. Evidence of compliance with the requirements of Section M1413.3.1 to 1413.3.2 shall accompany all equipment installed within the City of El Paso.

M1413.4. Electrical Connections. Electrical components and installations shall conform to the El Paso Electrical Code. The blower motor and water recirculation pump shall be internally protected to shut-off automatically in the event of an electrical overload or excessive temperature. The maximum shut-off temperature shall be: (1) blower motor, 105°C; and (2) pump, 135°C.

M1413.5 Plumbing Connections. Water connections and materials shall conform to the El Paso Plumbing Code.

M1413.6 Structural Supports. Evaporative cooler fastenings, including mounts, platforms and frames, shall be of non-combustible material and shall be of sufficient size and strength to meet the requirements of the International Building Code.

M1413.7 Water Supply.

M1413.7.1 Bleeder Lines Prohibited. New and replacement evaporative coolers shall not be provided or installed with bleeder lines.

M1413.7.2 Automatic water draining System Required. An automatic water draining system shall be provided for all evaporative coolers for which the cooler manufacturer requires the use of a bleeder line. The automatic water draining system shall operate on a periodic basis of not less than a 4-hour interval between operation times and shall be capable of fully draining the water from the cooler pan. The automatic draining system shall either discharge into the building drainage system through an indirect waste piping system complying with Section 802 of the Plumbing Code or shall be conducted to the exterior of the building or structure, and shall be discharged so that the effluent is used for watering landscaping or other outdoor vegetation. In no event shall drainage from coolers be wasted into or upon the public way.
(Ord. No. 019528, § 1, 8-1-2023)

18.10.155 Section M1601.1 (9), added.

Flexible air ducts in residential installations are limited to 10 feet in length unless an engineered design is provided.
(Ord. No. 019528, § 1, 8-1-2023)

18.10.160 Section G2404.1.2 Manufactured homes, added.

International Residential Code, 2021 Edition, Section G2404.1.2, Manufactured Homes, is hereby added to read as follows:

G2404.1.2 Manufactured Homes. Appliance installations in manufactured housing meeting the requirements of the Texas Manufactured Housing Standards Act, or in industrialized housing or industrialized buildings meeting the requirements of the Texas Industrialized Housing and Building Act or bearing the Federal Compliance Plate (ANSI-A119.1), including the appliance connections and the fuel gas piping system, shall not be subject to the provisions of this Code except for the test provisions of Sections G2417.4.1 and G2417.4.2.
(Ord. No. 019528, § 1, 8-1-2023)

18.10.170 Section G2412.2 (401.2) Liquefied petroleum gas storage, amended.

International Residential Code, 2021 Edition, Section G2412.2, Liquefied petroleum gas storage, is hereby amended to read as follows:

G2412.2 Liquefied Petroleum Gas.

G2412.2.1 Liquefied Petroleum Gas Storage. The storage system for liquefied petroleum gas shall be designed and installed in accordance with the Fire Code.

G2412.2.2 Liquefied Petroleum Gas Service. Liquefied Petroleum Gas systems shall not be installed in Group R1, R2, R3 and R4 occupancies when a natural gas utility supply pipe is available within 300 feet of the buildings.
(Ord. No. 019528, § 1, 8-1-2023)

18.10.180 Section G2412.11 Meter location, added.

International Residential Code, 2021 Edition, Section G2412.11, Meter Location, is hereby added to read as follows:

G2412.11 Meter Location. A meter location, when required, shall be provided for the property or premises to be served. The location shall be such that the meter and connections are accessible in order that they may be read or changed. Space requirements, dimensions, and type of installation shall be acceptable to the gas company. Meter location will be determined by the utility company in conformance with their service franchise.
(Ord. No. 019528, § 1, 8-1-2023)

18.10.190 Section G2415.3.1 Prohibited locations, added.

International Residential Code, 2021 Edition, Section G2415.3, Piping in concealed locations, is hereby amended to read as follows:

G2415.3 Piping in Concealed Locations. Portions of a piping system installed in concealed locations shall not have unions, tubing fittings, bushings, compression couplings and swing joints made by combinations of fittings.

Exceptions:

1. Tubing joined by brazing.
2. Fittings listed for use in concealed locations.

(Ord. No. 019528, § 1, 8-1-2023)

18.10.200 Section G2417.4 (406.4) Test pressure measurement, amended.

International Residential Code, 2021 Edition, Section G2417.4 Test Pressure Measurement, is hereby amended to read as follows:

G2417.4 Test Pressure Measurement. Test pressure shall be measured with a manometer or with a pressure-measuring device designed and calibrated to read, record, or indicate a pressure loss caused by leakage during the pressure test period. The source of pressure shall be isolated before the pressure tests are made. Mechanical gauges used to measure test pressures shall have a range such that the highest end of the scale is not greater than two (2) times the test pressure. Tests requiring a pressure of 10 psi or less shall utilize a testing gauge having increments of 0.20 psi or less. Tests requiring a pressure greater than 10 psi but less than or equal to 60 psi shall utilize a testing gauge having increments of 1 psi or less.

G2417.4.1 Test Pressure. Low pressure gas piping shall withstand a pressure of at least 10 psi or 16 inches of mercury. Higher pressure gas piping shall withstand a pressure of at least 60 psi on a clock gauge with a printed record chart. For the purposes of this section, "low pressure" shall mean pressure equal to or less than 0.5 psi.

G2417.4.2 Test duration. Test duration shall be not less than 15 minutes for low pressure gas piping and not less than 4 hours for higher pressure gas piping.
(Ord. No. 019528, § 1, 8-1-2023)

18.10.210 Section P2501.2 Application, amended.

International Residential Code, 2021 Edition, Section P2501.2 Application, is hereby amended to read as follows:

P2501.2 Application. In addition to the general administrative requirements of Chapter 18.02, Building and Construction Administrative Code of the El Paso City Code, the provisions of this Chapter shall also apply to the plumbing requirements of Chapters 25 through 32.
(Ord. No. 019528, § 1, 8-1-2023)

18.10.220 Section P2602.1 General, amended.

International Residential Code, 2021 Edition, Section P2602.1, General, is hereby amended to read as follows:

P2602.1 General. The water distribution and drainage system of any building or premises where

plumbing fixtures are installed shall be connected to a public water supply and to a public sewer system.

Exception:

1. Bathtubs, showers, lavatories, clothes washers and laundry sinks shall not be required to discharge to the sanitary drainage system where such fixtures discharge to an approved gray water recycling system. Evaporative coolers automatic water draining systems may discharge to an approved gray water recycling system.

2. When a public sewer is not available within 300 feet of the building for use, an individual or private sewage disposal system may be utilized provided that such system is designed, installed and maintained in accordance with the requirements of Chapter 18.21 of the Municipal Code.
(Ord. No. 019528, § 1, 8-1-2023)

18.10.230 Section P2603.5.2 Protection of Water Service Entrance, added.

International Residential Code, 2021 Edition, Section P2903.1.1 Protection of Water Service Entrance, is hereby added to read as follows:

P2603.5.2 Protection of Water Service Entrance. Water service entrance and risers to all structures shall be on the heated side of a conditioned space.
(Ord. No. 019528, § 1, 8-1-2023)

18.10.240 Section P2603.5.3 Plumbing within exterior walls, added.

International Residential Code, 2021 Edition, Section 2903.1.2 Plumbing within exterior walls, is hereby added to read as follows:

P2603.5.3 Plumbing within exterior walls. Placement of plumbing within exterior walls is prohibited unless the walls are at minimum, 2 by 6 walls and adequate provision is made to protect such pipes from freezing in accordance with Section 305.6 of the International Plumbing Code. Placement of water lines in ceiling areas is prohibited unless the water lines are placed on the warm side with a minimum of 10 inch insulation on the exterior/roof side of the structure.

Exceptions:

a. A service entrance may enter a non-conditioned space provided that the riser/service entrance is within an approved, heated valve protective enclosure also known as a "hot box", or

b. Cross linked polyethylene, also known as PEX, or approved equal, is used as the service entrance material, and

c. Any hose bibs installed shall be freeze proof.
(Ord. No. 019528, § 1, 8-1-2023)

18.10.250 Section P2709.2 Lining required, amended.

International Residential Code, 2021 Edition, Section P2709.2, Lining required, is hereby amended to read as follows:

P2709.2 Lining Required. All shower receptors shall be provided with an approved lining, except as noted herein. The adjoining walls and floors, enclosing field-constructed shower receptors shall be lined with copper or other approved materials listed in this Code, extending not less than three (3) inches beyond or around the rough jambs and not less than three (3) inches above finished thresholds. Recessed shower compartments need not be lined, provided the compartment is formed of concrete, is recessed a minimum of four (4) inches below the adjacent floor level, and the concrete is not less than three and one-half (3½) inches thick with an ultimate compressive strength of not less than two thousand (2000) pounds per square inch.
(Ord. No. 019528, § 1, 8-1-2023)

18.10.260 Section P2709.2.3 Hot-mopping, deleted.

International Residential Code, 2021 Edition, Section P2709.2.3, Hot-Mopping, is hereby deleted in its entirety.
(Ord. No. 019528, § 1, 8-1-2023)

18.10.270 Reserved.

18.10.280 Section P2903.3.3 Accessibility, added.

International Residential Code, 2021 Edition, Section P2903.3.3, Accessibility, is hereby added to read as follows:

2903.3.2 Accessibility. Installation shall be such as to make the regulator accessible without excavating or removing permanent structural or finished portions of the structure.
(Ord. No. 019528, § 1, 8-1-2023)

18.10.290 Section P2903.12 Under concrete slabs, added.

International Residential Code, 2021 Edition Section P2903.12, Under Concrete Slabs, is hereby added to read as follows:

P2903.12 Under Concrete Slabs. Inaccessible water distribution piping under slabs shall be copper water tube minimum Type L, brass, ductile iron pressure pipe, chlorinated polyvinyl chloride (CPVC) or crosslinked polyethylene (PEX) plastic pipe or tubing—all to be installed with approved fittings or bends. The minimum pressure rating for plastic pipe or tubing installed under slabs shall be 100 psi at 180°F.
(Ord. No. 019528, § 1, 8-1-2023)

18.10.300 Reserved.

18.10.301 Section P3005.2.3 Building drain and building sewer junction, amended.

International Residential Code, 2021 Edition, Section P3005.2.3, Building Drain and Building Sewer Junction, is hereby amended to read as follows:

P3005.2.3 Building Drain and Building Sewer Junction. There shall be a cleanout within 10 feet of the junction of the building drain and the building sewer. The cleanout shall be outside the building and shall be brought up to the finished ground level. An approved two-way cleanout is allowed to be used at this location to serve as a required cleanout for both the building drain and building sewer.
(Ord. No. 019528, § 1, 8-1-2023)

18.10.310 Part VIII Electrical, deleted.

International Residential Code, 2021 Edition, Part VIII-Electrical, is hereby deleted in its entirety and the following shall substitute in its stead:

Chapter 18.16 Adopted. The provisions of Chapter 18.16, City of El Paso Electrical Code, shall regulate the installation of electrical systems, equipment and components, indoors and outdoors that are within the scope of this Code, including services, power distribution systems, fixtures, appliances, devices and appurtenances.
(Ord. No. 019528, § 1, 8-1-2023)

18.10.311 Appendix AA, Sizing and Capacities of Gas Piping.

International Residential Code, 2021 Edition Appendix AA, Sizing and Capacities of Gas Piping is hereby adopted in its entirety.
(Ord. No. 019528, § 1, 8-1-2023)

18.10.312 Appendix AB, Sizing of Venting Serving Appliances Equip with Draft Hoods, Category I Appliances, and Appliances listed for Use with Type B Vents.

International Residential Code, 2021 Edition Appendix AB, Sizing of venting Serving Appliances Equip with Draft Hoods, Category I Appliances, and Appliances for Use with Type B Hoods, is hereby adopted in its entirety.
(Ord. No. 019528, § 1, 8-1-2023)

18.10.313 Appendix AC, Exit Terminals of Mechanical Draft and Direct-Vent Venting Systems.

International Residential Code, 2021 Edition Appendix AC, Exit terminals of Mechanical Draft and Direct-Vent Venting Systems, is hereby adopted in its entirety.
(Ord. No. 019528, § 1, 8-1-2023)

18.10.320 Appendix AE, Manufactured Housing Used as Dwellings, adopted.

International Residential Code, 2021 Edition, Appendix AE, Manufactured Housing Used as Dwellings is hereby adopted in its entirety.
(Ord. No. 019528, § 1, 8-1-2023)

18.10.321 Appendix AG, Piping Standards for Various Applications.

International Residential Code, 2021 Edition Appendix AG, Piping Standards for Various Applications, is hereby adopted in its entirety.
(Ord. No. 019528, § 1, 8-1-2023)

18.10.330 Section AE101.1 General, amended.

International Residential Code, 2021 Edition, Section AE101.1 General, is hereby amended to read as follows:

AE101 General. These provisions shall be applicable only to a manufactured home used as a single-dwelling unit and shall apply to the following:

1. Construction, alteration and repair of any foundation system which is necessary to provide for the installation of a manufactured home unit.

2. Construction, installation, addition, alteration, repair or maintenance of the building service equipment which is necessary for connecting manufactured homes to water, fuel or power supplies and sewage systems.

3. Alterations, additions or repairs to existing manufactured homes. The construction, alteration, moving, demolition, repair and use of accessory buildings and structures and their building service equipment shall comply with the requirements of the Municipal Code.

These provisions shall not be applicable to the design and construction of manufactured homes nor shall they be deemed to authorize either modifications or additions to manufactured homes where otherwise prohibited.
(Ord. No. 019528, § 1, 8-1-2023)

18.10.340 Reserved.

18.10.350 Appendix AH, Patio Covers, adopted.

International Residential Code, 2021 Edition, Appendix AH, Patio Covers, is hereby adopted in its entirety.
(Ord. No. 019528, § 1, 8-1-2023)

18.10.360 Appendix AK, Sound Transmission, adopted.

International Residential Code, 2021 Edition, Appendix AK, Sound Transmission, is hereby adopted in its entirety.
(Ord. No. 019528, § 1, 8-1-2023)

18.10.361 Appendix AM, Home Day Care—R-3 Occupancy.

International Residential Code, 2021 Edition Appendix AM, Home Day Care—R-3 Occupancy, is hereby adopted in its entirety.
(Ord. No. 019528, § 1, 8-1-2023)

18.10.362 Appendix AN, Venting Methods.

International Residential Code, 2021 Edition Appendix AN, Venting methods, is hereby adopted in its entirety.
(Ord. No. 019528, § 1, 8-1-2023)

18.10.363 Appendix AP, Sizing of Water Piping Systems.

International Residential Code, 2021 Edition Appendix AP, Venting methods, is hereby adopted in its entirety.
(Ord. No. 019528, § 1, 8-1-2023)

18.10.364 Appendix AQ, Tiny Houses.

International Residential Code, 2021 Edition Appendix AQ, Tiny Houses, is hereby adopted in its entirety.
(Ord. No. 019528, § 1, 8-1-2023)

18.10.365 Appendix AR, Light Straw Construction.

International Residential Code, 2021 Edition Appendix R, Light Straw Construction, is hereby adopted in its entirety.
(Ord. No. 019528, § 1, 8-1-2023)

18.10.366 Appendix AS, Strawbale Construction.

International Residential Code, 2021 Edition Appendix AS, Strawbale Construction, is hereby adopted in its entirety.
(Ord. No. 019528, § 1, 8-1-2023)

18.10.367 Appendix U, Solar ready Provisions—Detached One & Two Family Dwellings, Multiple Single Family Dwellings (Townhouses)

International Residential Code, 2021 Edition Appendix U, Solar-Ready Provisions, Detached One and Two Family Dwellings, Multiple Family Dwellings (Townhouses), is hereby adopted in its entirety.
(Ord. No. 019528, § 1, 8-1-2023)

18.10.370 Reserved.

18.10.380 Appendices.

International Residential Code, 2021 Edition, Appendices unless specifically adopted or referenced are retained as administrative guidance aids.
(Ord. No. 019528, § 1, 8-1-2023)

18.10.390 Conflicting ordinances.

All ordinances and parts of ordinances in conflict with the provisions of this chapter are hereby repealed as follows: Ordinance No. 014729 dated 12/12/2000, Ordinance No. 15967 dated 12-14-2004 and Ordinance No. 18510 dated 5-31-2016.
(Ord. No. 019528, § 1, 8-1-2023)

18.10.400 Violations and Penalties.

Any person, firm, corporation or agent who shall violate a provision of this Code or of the technical codes, or fail to comply therewith, or with any of the requirements thereof, or who shall erect, construct, alter, install, demolish or move any structure, electrical, gas, mechanical or plumbing system, or has erected, constructed, altered, repaired, moved or demolished a building, structure, electrical, gas, mechanical or plumbing system; in violation of a detailed statement or drawing submitted and permitted thereunder, shall be deemed guilty of a misdemeanor and punished by a fine not to exceed two thousand dollars. Each such person shall be deemed guilty of a separate offense for each and every day or portion thereof during which any violation of any of the provisions of this Code or of the technical codes is committed or continued.
(Ord. No. 019528, § 1, 8-1-2023)

Chapter 18.12

MECHANICAL CODE*

Sections:

18.12.010 Short title.

18.12.020 Adoption.

18.12.025 Reserved.

18.12.030 Section 309.1 Space-heating systems, amended.

18.12.040 Section 507.2.6 Clearance for Type I hood, amended.

18.12.040.1 Section 508.1.1 Makeup air temperature, amended.

18.12.050 Section 510.4 Independent system, Exception 9, added.

18.12.060 Section 603.6.1.1 Duct length, amended.

18.12.070 Section 908.6, Drainage, amended.

18.12.080 Section 928, Evaporative cooling, amended.

18.12.090 Appendix A is adopted in its entirety.

18.12.100 Conflicting ordinances.

18.12.010 Short title.

This chapter may be cited as the "Mechanical Code."
(Ord. No. 019528, § 1, 8-1-2023)

18.12.020 Adoption.

The book entitled "International Mechanical Code," 2021 Edition, a copy of which authenticated by the City Clerk is on file in the City Clerk's Office, is adopted as the Mechanical Code of the City, as fully as if copied at length in this chapter, but with the changes set forth in this chapter and Chapter 18.02, the Building and Administrative Code of the City of El Paso.
(Ord. No. 019528, § 1, 8-1-2023)

***Editor's note—**Ord. No. 019528, § 4, adopted Aug 1, 2023, amended Ch.18.12 in its entirety to read as set out herein. The former Ch. 18.12, §§ 18.12.010—18.12.100, pertained to similar subject matter and derived from Ord. No. 18511, § 1, adopted May 31, 2016.

18.12.025 Reserved.

18.12.030 Section 309.1 Space-heating systems, amended.

International Mechanical Code, 2021 Edition, Section 309.1 Space-heating systems, is hereby amended to read as follows:

309.1 Space-heating and cooling systems. Interior spaces intended for human occupancy shall be provided with active or passive space-heating and cooling systems capable of maintaining an indoor temperature between 68°F (20°C) and 90°F at a point 3 feet above the floor in all habitable spaces. The installation of portable space heaters shall not be used to achieve compliance with this section.

Exceptions:

1. Interior spaces where the primary purpose is not associated with human comfort.

2. Group F, H, S and U occupancies
(Ord. No. 019528, § 1, 8-1-2023)

18.12.040 Section 507.2.6 Clearance for Type I hood, amended.

International Mechanical Code, 2021 Edition, Section 507.2.6 Clearances for Standard Type I and Type I labeled for zero clearance hoods is hereby amended to read as follows:

507.2.6 Clearances for Standard Type I and Type I labeled for zero clearance hoods. All Type I hoods shall be installed with a clearance to combustibles of not less than 18 inches (457 mm).

Exception: Clearance shall not be required from ⅝-inch or thicker Type X gypsum wallboard, ½-inch or thicker (12.7 mm) Type C gypsum wallboard or ½-inch (12.7 mm) or thicker cementitious wallboard attached to noncombustible structures provided that a smooth, cleanable, nonabsorbent and noncombustible material is installed between the hood and the gypsum or cementitious wallboard over an area extending not less than 18 inches (457 mm) beside and above the hood and shall extend to the floor below the hood. There shall be no combustible structure

below the hood or within 18-inches in any direction, below the hood. Reduced clearances shown on hood tags are not approved.
(Ord. No. 019528, § 1, 8-1-2023)

18.12.040.1 Section 508.1.1 Makeup air temperature, amended.

International Mechanical Code, 2021 Edition, Section 508.1.1 Makeup air temperature, is hereby amended to read as follows:

508.1.1 Makeup air temperature. The temperature difference between makeup air and the air in the conditioned space shall not exceed 10°F (6°C) for heating and 15° for cooling except where the added heating and cooling loads or the makeup air do not exceed the capacity of the HVAC system.
(Ord. No. 019528, § 1, 8-1-2023)

18.12.050 Section 510.4 Independent system, Exception 9, added.

International Mechanical Code, 2021 Edition, Section 510.4 Independent system, is hereby amended to add Exception 9 at the end of the section, to read as follows:

510.4 Independent system.

Exception:

9. Contaminated air shall not be recirculated. Air containing explosive or flammable vapors, fumes or dusts; flammable, highly toxic or toxic gases; or radioactive materials shall be considered to be contaminated.
(Ord. No. 019528, § 1, 8-1-2023)

18.12.060 Section 603.6.1.1 Duct length, amended.

International Mechanical Code, 2021 Edition, Section 603.6.1.1 Duct length, is hereby amended to read as follows:

603.6.1.1 Duct length. In commercial Installations Flexible air ducts and connectors shall be limited to ten (10) feet in maximum length.

603.6.1.2 Duct length. In residential Installations flexible duct, if engineered design, the length will be unlimited.
(Ord. No. 019528, § 1, 8-1-2023)

18.12.070 Section 908.6, Drainage, amended.

International Mechanical Code, 2021 Edition, Section 908.6, Drainage, is hereby amended to read as follows:

908.6 Drainage. Water from such units shall be discharged into an approved disposal system in accordance with the Plumbing Code. All water supply, waste water and connections shall comply with the requirements of the International Plumbing Code.

908.6.1 All new installations or replacements of water-cooled refrigeration systems 3 H.P. or greater, governed by this Code or the International Plumbing Code, shall be provided with an effective recirculation system.

908.6.2 If an automatic waste system is provided for draining or flushing the system, it shall conform with Chapter 8 of the International Plumbing Code, as amended, and shall be piped to an approved receptacle unless other disposition is authorized by the building official. In no event shall drainage be wasted into or upon the public way.
(Ord. No. 019528, § 1, 8-1-2023)

18.12.080 Section 928, Evaporative cooling, amended.

International Mechanical Code, 2021 Edition, Section 928 Evaporative Cooling, is hereby amended to read as follows:

928.1 General. Every evaporative cooler installed system shall comply with these provisions.

928.2.1. No evaporative cooler shall be installed so as to obstruct any required means of egress nor reduce passage of required light and air.

928.2.2. Evaporative cooler installations which extend beyond the exterior line of a structure shall comply with Building Code and Zoning Regulations as to allowable projection and overhead clearance. Evaporative cooler structures which project more than eighteen inches (18") from a building shall maintain a minimum clearance of fourteen feet (14') above areas subject to vehicle traffic.

928.3 Materials of Construction.

928.3.1. All evaporative cooler blowers and cabinets, including pan, corner posts, top and pad frames, shall be constructed of non-combustible materials or approved plastics as defined below. Evaporative pads and interior water circulatory systems need not be of non-combustible materials.

928.3.2 Approved Plastics. Approved plastic or reinforced plastic materials shall be those which are classified as 94-5V in accordance with Underwriters Laboratory Test 94-5V "Vertical Burning Test for Classifying Materials".

928.3.3 Evidence of Compliance. Evidence of compliance with the requirements of Section 926.3.1 to 311.3.2 shall accompany all equipment installed within the City of El Paso.

928.4 Electrical Connections. Electrical components and installations shall conform to the El Paso Electrical Code. The blower motor and water recirculation pump shall be internally protected to shut-off automatically in the event of an electrical overload or excessive temperature. The maximum shut-off temperature shall be: (1) blower motor, 105°C; and (2) pump, 135°C.

928.5 Plumbing Connections. Water connections and materials shall conform to the El Paso Plumbing Code.

928.6 Structural Supports. Evaporative cooler fastenings, including mounts, platforms and frames, shall be of non-combustible material and shall be of sufficient size and strength to meet the requirements of the International Building Code.

928.7 Water Supply.

928.7.1 Bleeder Lines Prohibited. New and replacement evaporative coolers shall not be provided or installed with bleeder lines.

928.7.2 Automatic water draining System Required. An automatic water draining system shall be provided for all evaporative coolers for which the cooler manufacturer requires the use of a bleeder line. The automatic water draining system shall operate on a periodic basis of not less than a 4-hour interval between operation times and shall be capable of fully draining the water from the cooler pan. The automatic draining system shall either discharge into the building drainage system through an indirect waste piping system complying with Section 802 of the International Plumbing Code, as amended, or shall be conducted to the exterior of the building or structure, and shall be discharged so that the effluent is used for watering landscaping or other outdoor vegetation. In no event shall drainage from coolers be wasted into or upon the public right-of-way.
(Ord. No. 019528, § 1, 8-1-2023)

18.12.090 Appendix A is adopted in its entirety.

International Mechanical Code, 2021 Edition, Appendix A, is adopted.
(Ord. No. 019528, § 1, 8-1-2023)

18.12.100 Conflicting ordinances.

All ordinances and parts of ordinances in conflict with the provisions of this chapter are hereby repealed as follows: Ordinance No. 014732 dated 12-12-2000 and Ordinance No. 15965 dated 12-14-2004.
(Ord. No. 019528, § 1, 8-1-2023)

Chapter 18.16

ELECTRICAL CODE*

Sections:

18.16.010 Short title.

18.16.020 Adoption.

18.16.030 Article 80 Evaporative Coolers, added.

18.16.040 Section 210.70 Lighting Outlets Required (A)(2)(b), amended.

18.16.050 Section 210.70 Lighting Outlets Required (A)(3), added.

18.16.060 Section 210.71 Additional Outlets, added.

18.16.080 Reserved.

18.16.090 Section 230.28 Service Masts as Supports, amended.

18.16.110 Section 230.70 General, (A)(1), amended.

18.16.120 Section 230.70.1 "Six Hand Movement", added.

18.16.230 Section 406.8 Receptacles in Damp or Wet Locations (G) Air Condition Equipment, added.

18.16.240 Section 410.36 Means of Support (B) Suspended Ceilings, amended.

18.16.250 Section 422.12 Central Heating Equipment, amended.

18.16.260 Section 590.4 General (K) Temporary Service Poles, added.

18.16.270 Section 600.10 Portable or Mobile Signs, deleted.

18.16.280 Section 600.43 Miscellaneous Provisions, added.

18.16.290 Section 725.41 Class 1 Circuit Classifications and Power Source Requirements (C) Transformers for Class 2 and Class 3 low voltage Circuits, added.

18.16.300 Errata, adopted.

18.16.310 Conflicting ordinances.

***Editor's note—**Ord. No. 019528, § 5, adopted Aug 1, 2023, amended Ch. 18.16 in its entirety to read as set out herein. The former Ch. 18.16, §§ 18.16.010—18.16.310, pertained to similar subject matter and derived from Ord. No. 18512, § 1, adopted May 31, 2016.

18.16.010 Short title.

This chapter may be cited as the "Electrical Code".
(Ord. No. 019528, § 1, 8-1-2023)

18.16.020 Adoption.

The book entitled "NFPA 70 National Electrical Code," 2020 Edition, a copy of which authenticated by the City Clerk is on file in the City Clerk's Office is adopted as the Electrical Code of the City, as fully as if copied at length in this chapter, but with the changes set forth in this chapter and Chapter 18.02, the Building and Administrative Code of the City of El Paso.
(Ord. No. 019528, § 1, 8-1-2023)

18.16.030 Article 80 Evaporative Coolers, added.

NFPA 70 National Electrical Code, 2020 Edition, Article 80 Evaporative Coolers, is hereby added to read as follows:

80.1 Evaporative Coolers. Evaporative cooler shall have their controls mounted in a metal box. Conductors -to the equipment.

80.2 Controls and Operating Mechanisms. In areas required by the Building Code to be accessible to persons with disabilities, the highest operable part of controls, receptacles and other operable equipment shall be placed within at least of one of the reach ranges specified in this section. Electrical and communications receptacles on walls shall be mounted no less than 15 in (380 mm) above the floor to the bottom of the box.

80.3 Forward Reach. If the clear floor space allows only forward approach to an object, the highest operable part of controls, receptacles and other operable equipment shall be placed not more than 48 in (1220 mm) above finished floor to the top of the box.

80.4 Side Reach. If the clear floor space allows only parallel approach to an object, the highest operable part of controls, receptacles and other operable equipment shall be placed not more than 54 in (1370 mm) above finished floor to the top of the box.
(Ord. No. 019528, § 1, 8-1-2023)

18.16.040 Section 210.70 Lighting Outlets Required (A)(2)(b), amended.

NFPA 70 National Electrical Code, 2020 Edition, Section 210.70 Lighting Outlets Required, (A) Dwelling Units, (2) Additional Locations, (b) is hereby amended to read as follows:

210.70 Lighting Outlets Required. (A) Dwelling Units, (2) Additional Locations (b). For dwelling units, attached garages, and detached garages with electric power, at least one wall switch-controlled lighting outlet shall be installed to provide illumination on the exterior side of outdoor entrances or exits with grade level access. A vehicle door in a garage shall be considered as an outdoor entrance or exit.
(Ord. No. 019528, § 1, 8-1-2023)

18.16.050 Section 210.70 Lighting Outlets Required (A)(3), added.

NFPA 70 National Electrical Code, 2020 Edition, Section 210.70 Lighting Outlets Required, (A) Dwelling Units, (3) Storage or Equipment Spaces, is hereby amended by adding the following sentence at the end of the paragraph:

210.70 Lighting Outlets Required. (A) Dwelling Units (3) Storage or Equipment Spaces.

Add: An attic shall be considered storage area if it has either a decked area or permanent access ladder.
(Ord. No. 019528, § 1, 8-1-2023)

18.16.060 Section 210.71 Additional Outlets, added.

NFPA 70 National Electrical Code, 2020 Edition, Section 210.70C Additional Outlets, is hereby added to read as follows:

210.70C Additional Outlets. The following receptacle outlets shall be installed, in addition to those required by National Electrical Code, 2020 Edition, Sections 210-50 through 210-70:

(1) On wall areas over work benches, behind bars, serving counters, or other wall spaces where electrical signs or appliances may be used or installed, not less than one (1) receptacle outlet shall be installed for every six (6) feet or major fraction thereof (i.e., the second receptacle outlet shall be located a maximum of (nine) 9 feet from the beginning of the work bench, serving counter or wall space) from the edge measured horizontally along such wall parallel to the floor or ceiling.

(2) In lounges, taverns, bars or other establishments where electrical signs, appliances or similar devices may be placed on or attached to the ceiling, sufficient receptacle outlets shall be installed on the ceilings so that no point on such ceiling is more than twelve (12) feet from a receptacle outlet.

(3) In "mini-warehouse" units or similar storage occupancies designed to be leased or rented individually the following minimum requirements for lights and receptacles shall be provided:

Exterior lighting providing a minimum 2.0 foot-candle illumination at the ground level at the center of the entry door of each unit.
(Ord. No. 019528, § 1, 8-1-2023)

18.16.080 Reserved.

18.16.090 Section 230.28 Service Masts as Supports, amended.

NFPA 70 National Electrical Code, 2020 Edition, Section 230.28, Service Masts as Supports, is hereby amended to read as follows:

230.28. Service Masts as Supports.

(a) Where a service mast is used for the support of service-drop conductors, it shall be of

rigid metal conduit or intermediate metal conduit supported and anchored to safely withstand the strain imposed by the service drop. All mast fittings shall be identified for use with service masts. Only power service-drop conductors shall be permitted to be attached to a service mast.

(b) All other service masts shall be of rigid metal conduit, intermediate metal conduit, or electrical metallic tubing.
(Ord. No. 019528, § 1, 8-1-2023)

18.16.110 Section 230.70 General, (A)(1), amended.

NFPA 70 National Electrical Code, 2020 Edition, Section 230.70 General, (A) Location, (1) Readily Accessible Location, is hereby amended to read as follows:

230.70 General. (A) Location, (1) Readily Accessible Location.

(1) Readily Accessible Location.

(a) Services rated 800 amps or less. A load-break rated meter disconnect shall be installed on the exterior of the building or structure adjacent to and not more than five (5) feet from the meter. The service disconnecting means is allowed to meet this requirement if installed in compliance with this proximity requirement and the requirements of the NEC. If the service disconnecting means is located more than five feet from the meter, a separate and additional load-break rated meter disconnect that meets this proximity requirement is required on the supply (line) side of the service disconnecting means.

(b) Services rated over 800 amps. The service disconnecting means shall be located not more than five (5) feet, measured vertically and horizontally, from the point where the service conductors enter the building or structure.
(Ord. No. 019528, § 1, 8-1-2023)

18.16.120 Section 230.70.1 "Six Hand Movement", added.

NFPA 70 National Electrical Code, 2020 Edition, Section 230.70.1, "Six Hand Movement", is hereby added to read as follows:

230.70.1 "Six Hand Movement".

"Six Hand Movement" rule will apply to switches or circuit breakers used to disconnect feeders only. A "main" switch or circuit breaker will be required ahead of any branch circuit overcurrent protection.
(Ord. No. 019528, § 1, 8-1-2023)

18.16.230 Section 406.8 Receptacles in Damp or Wet Locations (G) Air Condition Equipment, added.

NFPA 70 National Electrical Code, 2020 Edition, Section 406.8 Receptacles in Damp or Wet Locations, is hereby amended to add paragraph (G) Air Condition Equipment, to read as follows:

406.8 Receptacles in Damp or Wet Locations.

(G) Air Condition Equipment.

Receptacles used solely for the maintenance of air condition equipment will not be required to have "In Use" type covers.
(Ord. No. 019528, § 1, 8-1-2023)

18.16.240 Section 410.36 Means of Support (B) Suspended Ceilings, amended.

NFPA 70 National Electrical Code, 2020 Edition, Section 410.36 Means of Support, (B) Suspended Ceilings, is hereby amended to delete the last sentence as follows:

410.36 Means of Support, (B) Suspended Ceilings, Luminaires installed in suspended ceilings shall be securely attached to building structure from above at appropriate levels.
(Ord. No. 019528, § 1, 8-1-2023)

18.16.250 Section 422.12 Central Heating Equipment, amended.

NFPA 70 National Electrical Code, 2020 Edition, Section 422.12 Central Heating Equipment, is hereby amended to read as follows:

422.12 Central Heating Equipment. Central heating equipment other than fixed electric space-heating equipment shall be supplied by an individual branch circuit.

Exception 1: Auxiliary equipment, such as pump, valve, humidifier, or electrostatic air cleaner

directly associated with the heating equipment, shall be permitted to be connected to the same branch circuit.

Exception 2: Evaporative coolers may be supplied by the same individual branch circuit supplying the central heating equipment in residential occupancies only, provided the loads are non-coincidental.

(Ord. No. 019528, § 1, 8-1-2023)

18.16.260 Section 590.4 General (K) Temporary Service Poles, added.

NFPA 70 National Electrical Code, 2020 Edition, Section 590.4 General, is hereby amended to add paragraph (K) Temporary Service Poles, to read as follows:

590.4 General.

(K) Temporary Service Poles.

Temporary service poles shall be a minimum of four (4) inch by four (4) inch treated wood posts, or four (4) inch diameter round treated poles securely imbedded in the earth.

(Ord. No. 019528, § 1, 8-1-2023)

18.16.270 Section 600.10 Portable or Mobile Signs, deleted.

NFPA 70 National Electrical Code, 2020 Edition, Section 600.10 Portable or Mobile Signs, is hereby deleted in its entirety.

(Ord. No. 019528, § 1, 8-1-2023)

18.16.280 Section 600.43 Miscellaneous Provisions, added.

NFPA 70 National Electrical Code, 2020 Edition, Section 600.43 Miscellaneous Provisions, is hereby added to read as follows:

600.43 Miscellaneous Provisions.

(A) Sign circuits shall contain a copper grounding conductor deriving from the circuit's supply source; exterior locations shall terminate in a weatherproof box and cover. Taps in metallic raceways shall not be allowed as the grounding means.

(B) All sign installations shall maintain a clearance from adjacent power lines as follows:

Voltage—Line To Ground	H (ft.) Minimum Horizontal Clearance	V (ft.) Minimum Clearance Measured Either Diagonally or Vertically	V (ft.) Over or Under Catwalks Minimum Clearance Measured Either Diagonally or Vertically
Guy Wires and Neutrals	3	3	10.5
0—750 V Supply Cables Meeting Rule 230C2 and 230C3 NESC, 1997	3.5	3.5	11
0—750 V Open Conductors N.E.S.E. Rule 230C2 and 230C3	5.5	6	11.5
750V—22KV	7.5	8	13.5
Notes to table: 1. Signs should never hang over any adjacent power circuits. 2. Voltages are line to ground on a Y-Circuit with multi-ground neutral or between phases on an underground circuit.			

(Ord. No. 019528, § 1, 8-1-2023)

18.16.290 Section 725.41 Class 1 Circuit Classifications and Power Source Requirements (C) Transformers for Class 2 and Class 3 low voltage Circuits, added.

NFPA 70 National Electrical Code, 2020 Edition, Section 725.41 Class 1 Circuit Classifications and Power Source Requirements, is hereby amended

to add paragraph (C) Transformers for Class 2 and Class 3 low voltage Circuits, to read as follows:

725.41 Class 1 Circuit Classifications and Power Source Requirements.

(C) Transformers for Class 2 and Class 3 low voltage Circuits.

(1) Transformers for Class 2 and Class 3 low voltage circuits shall be accessible.

(2) Transformers for Class 2 and Class 3 low voltage circuits shall be installed in accordance with their listing.

(Ord. No. 019528, § 1, 8-1-2023)

18.16.300 Errata, adopted.

Errata to the 2020 NEC Code issued by the National Fire Protection Association is hereby adopted and shall become part of this Code.

(Ord. No. 019528, § 1, 8-1-2023)

18.16.310 Conflicting ordinances.

All ordinances and parts of ordinances in conflict with the provisions of this chapter are hereby repealed as follows: Ordinance No. 014308, 12-14-1999 and Ordinance No. 15900, 09-28-2004.

(Ord. No. 019528, § 1, 8-1-2023)

"Six Hand Movement" rule will apply to switches or circuit breakers used to disconnect feeders only. A "main" switch or circuit breaker will be required ahead of any branch circuit overcurrent protection.

(Ord. No. 18512, § 1, 5-31-2016)

18.16.130 Section 250.8 Connection of Grounding and Bonding Equipment, paragraph (A)(6), deleted.

NFPA 70 National Electrical Code, 2008 Edition, Section 250.8 Connection of Grounding and Bonding Equipment, paragraph (A)(6) is hereby deleted in its entirety.

(Ord. No. 18512, § 1, 5-31-2016)

18.16.140 Section 250.8 Connection of Grounding and Bonding Equipment, (B) Methods Not Permitted, amended.

NFPA 70 National Electrical Code, 2014 Edition, Section 250.8 Connection of Grounding and Bonding Equipment, (B) Methods Not Permitted, is hereby amended to read as follows:

250.8 Connection of Grounding and Bonding Equipment, (B) Methods Not Permitted. (1) Connection devices or fittings that depend solely on solder shall not be used. (2) Sheet metal screws shall not be used to connect grounding conductors or connection devices to enclosures.

(Ord. No. 18512, § 1, 5-31-2016)

18.16.150 Section 310.2 Conductors, (B) Conductor Material, amended.

NFPA 70 National Electrical Code, 2014 Edition, Section 310.2 Conductors, (B) Conductor Material, is hereby amended to read as follows:

310.2 Conductors, (B) Conductor Material. Conductors in this article shall be of aluminum, copper clad aluminum or copper unless otherwise specified. Aluminum or copper-clad aluminum conductors shall not be smaller than No. 2 AWG, except a ground conductor which is part of an approved cable assembly shall be not smaller than No. 6 AWG. Aluminum or copper clad conductors shall be used in the connection of stationary or fastened in place equipment. Such branch circuits shall be installed using metal clad cable or other metal raceway. Such conductors shall also be permitted for the connection of accessory structures via overhead cable granted the ampacity of the structure does not exceed the ampacity of the conductor.

(Ord. No. 18512, § 1, 5-31-2016)

18.16.160 Section 334.10 Uses Permitted (1), (2), (3), (4), (5) amended.

NFPA 70 National Electrical Code, 2014 Edition, Section 334.10 Uses Permitted, items (1), (2), (3) and (4) are amended to read as follows:

334.10 Uses Permitted. Type NM, Type NMC, and Type NMS cables shall be permitted to be used in the following:

(1) One- and two-family dwellings.

(2) Multifamily dwellings.

(Ord. No. 18512, § 1, 5-31-2016)

18.16.165 Securing and Supporting Non-Metallic Sheath Cable, added.

NFPA 70 National Electrical Code, 2014 Edition, Section 334.30 Securing and Supporting nonmetallic sheathed cable shall be supported and secured by insulated staples, cable ties, straps, hangers, or similar fittings designed and installed so as not to damage the cable, at intervals not exceeding 4.5 feet (1.4 mm) and within 12 inches (300 mm) of every outlet box, cabinet, or fitting. Flat cables shall not be stapled on edge. Sections of cable protected from physical damage by raceway shall not be required to be secured within the raceway.

(Ord. No. 18512, § 1, 5-31-2016)

18.16.170 Reserved.

18.16.180 Article 382 Nonmetallic Extensions, deleted.

NFPA 70 National Electrical Code, 2014 Edition, Article 382 Nonmetallic Extensions is hereby deleted in its entirety.
(Ord. No. 18512, § 1, 5-31-2016)

18.16.190 Article 394 Concealed Knob-and-Tube Wiring, deleted.

NFPA 70 National Electrical Code, 2014 Edition, Article 394, concealed Knob-and-Tube Wiring, is hereby deleted in its entirety.
(Ord. No. 18512, § 1, 5-31-2016)

18.16.200 Article 398 Open Wiring on Insulators, deleted.

NFPA 70 National Electrical Code, 2014 Edition, Article 398, Open Wiring on Insulators is hereby deleted in its entirety.
(Ord. No. 18512, § 1, 5-31-2016)

18.16.210 Section 404.10 Mounting of Snap Switches, (A) Surface-Type, deleted.

NFPA 70 National Electrical Code, 2014 Edition, Section 404.10 Mounting of Snap Switches, (A) Surface-Type, is hereby deleted in its entirety.
(Ord. No. 18512, § 1, 5-31-2016)

18.16.220 Section 406.8 Receptacles in Damp or Wet Locations (F) Plastic Bubble Type, added.

NFPA 70 National Electrical Code, 2014 Edition, Section 406.8 Receptacles in Damp or Wet Locations, is hereby amended to add paragraph (F) Plastic Bubble Type, to read as follows:

406.8 Receptacles in Damp or Wet Locations.

(F) "Plastic Bubble Type" in-use covers are not permitted.
(Ord. No. 18512, § 1, 5-31-2016)

18.16.230 Section 406.8 Receptacles in Damp or Wet Locations (G) Air Condition Equipment, added.

NFPA 70 National Electrical Code, 2014 Edition, Section 406.8 Receptacles in Damp or Wet Locations, is hereby amended to add paragraph (G) Air Condition Equipment, to read as follows:

406.8 Receptacles in Damp or Wet Locations.

(G) Air Condition Equipment.

Receptacles used solely for the maintenance of air condition equipment will not be required to have "In Use" type covers.
(Ord. No. 18512, § 1, 5-31-2016)

18.16.240 Section 410.36 Means of Support (B) Suspended Ceilings, amended.

NFPA 70 National Electrical Code, 2014 Edition, Section 410.36 Means of Support, (B) Suspended Ceilings, is hereby amended to delete the last sentence as follows:

410.36 Means of Support, (B) Suspended Ceilings, Luminaires installed in suspended ceilings shall be securely attached to building structure from above at appropriate levels.
(Ord. No. 18512, § 1, 5-31-2016)

18.16.250 Section 422.12 Central Heating Equipment, amended.

NFPA 70 National Electrical Code, 2014 Edition, Section 422.12 Central Heating Equipment, is hereby amended to read as follows:

422.12 Central Heating Equipment. Central heating equipment other than fixed electric space-heating equipment shall be supplied by an individual branch circuit.

Exception 1: Auxiliary equipment, such as pump, valve, humidifier, or electrostatic air cleaner directly associated with the heating equipment, shall be permitted to be connected to the same branch circuit.

Exception 2: Evaporative coolers may be supplied by the same individual branch circuit

supplying the central heating equipment in residential occupancies only, provided the loads are non-coincidental.

(Ord. No. 18512, § 1, 5-31-2016)

18.16.260 Section 590.4 General (K) Temporary Service Poles, added.

NFPA 70 National Electrical Code, 2014 Edition, Section 590.4 General, is hereby amended to add paragraph (K) Temporary Service Poles, to read as follows:

590.4 General.

(K) Temporary Service Poles.

Temporary service poles shall be a minimum of four (4) inch by four (4) inch treated wood posts, or four (4) inch diameter round treated poles securely imbedded in the earth.

(Ord. No. 18512, § 1, 5-31-2016)

18.16.270 Section 600.10 Portable or Mobile Signs, deleted.

NFPA 70 National Electrical Code, 2014 Edition, Section 600.10 Portable or Mobile Signs, is hereby deleted in its entirety.

(Ord. No. 18512, § 1, 5-31-2016)

18.16.280 Section 600.43 Miscellaneous Provisions, added.

NFPA 70 National Electrical Code, 2014 Edition, Section 600.43 Miscellaneous Provisions, is hereby added to read as follows:

600.43 Miscellaneous Provisions.

(A) Sign circuits shall contain a copper grounding conductor deriving from the circuit's supply source; exterior locations shall terminate in a weatherproof box and cover. Taps in metallic raceways shall not be allowed as the grounding means.

(B) All sign installations shall maintain a clearance from adjacent power lines as follows:

Voltage—Line To Ground	H (ft.) Minimum Horizontal Clearance	V (ft.) Minimum Clearance Measured Either Diagonally or Vertically	V (ft.) Over or Under Catwalks Minimum Clearance Measured Either Diagonally or Vertically
Guy Wires and Neutrals	3	3	10.5
0—750 V Supply Cables Meeting Rule 230C2 and 230C3 NESC, 1997	3.5	3.5	11
0—750 V Open Conductors N.E.S.E. Rule 230C2 and 230C3	5.5	6	11.5
750V—22KV	7.5	8	13.5

Notes to table:

1. Signs should never hang over any adjacent power circuits.
2. Voltages are line to ground on a Y-Circuit with multi-ground neutral or between phases on an underground circuit.

(Ord. No. 18512, § 1, 5-31-2016)

18.16.290 Section 725.41 Class 1 Circuit Classifications and Power Source Requirements (C) Transformers for Class 2 and Class 3 low voltage Circuits, added.

NFPA 70 National Electrical Code, 2014 Edition, Section 725.41 Class 1 Circuit Classifications and Power Source Requirements, is hereby amended to add paragraph (C) Transformers for Class 2 and Class 3 low voltage Circuits, to read as follows:

725.41 Class 1 Circuit Classifications and Power Source Requirements.

(C) Transformers for Class 2 and Class 3 low voltage Circuits.

(1) Transformers for Class 2 and Class 3 low voltage circuits shall be accessible.

(2) Transformers for Class 2 and Class 3 low voltage circuits shall be installed in accordance with their listing.

(Ord. No. 18512, § 1, 5-31-2016)

18.16.300 Errata, adopted.

Errata to the 2014 NEC Code issued by the National Fire Protection Association is hereby adopted and shall become part of this Code.

(Ord. No. 18512, § 1, 5-31-2016)

18.16.310 Conflicting ordinances.

All ordinances and parts of ordinances in conflict with the provisions of this chapter are hereby repealed as follows: Ordinance No. 014308, 12-14-1999 and Ordinance No. 15900, 09-28-2004.

(Ord. No. 18512, § 1, 5-31-2016)

Chapter 18.18

OUTDOOR LIGHTING CODE

Sections:

Article I. Purpose, Intent, Compliance and Applicability

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18.18.020 Compliance.

18.18.030 New buildings, new outdoor light fixtures and additions to existing facilities.

18.18.040 Additions.

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18.18.075 Interior high intensity discharge lights.

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18.18.420 Effective date.

Article I. Purpose, Intent, Compliance and Applicability

18.18.010 Intent.

A. Purpose. This chapter describes the type of outdoor lighting and certain interior high intensity discharge lighting that property owners may use with the ultimate goal of eliminating situations where lighting is an interference issue such as: over-lighting, glare, light clutter, sky glow, energy waste as well as possible effects on human psychology, astronomy and animal/plant ecosystems.

B. Intent. It is the intent of this chapter to define practical and effective measures by which the obtrusive aspects of excessive and/or careless outdoor light usage can be minimized, while preserving safety, security, and the nighttime use and enjoyment of property. These measures will curtail the degradation of the nighttime visual environment by encouraging outdoor lighting and certain interior high intensity discharge lighting practices that direct appropriate amounts of light where and when it is needed, /increasing the use of energy-efficient sources, and decreasing the wastage of light and glare resulting from overlighting and poorly shielded or inappropriately directed lighting fixtures. (Ord. 15996 § A (part), 2005)
(Ord. 17171, § 1, 8-18-2009)

18.18.020 Compliance.

All outdoor luminaires devices shall be installed in conformance with the provisions of this Code, the building code, the electrical code, and the sign code of the City of El Paso as applicable and under appropriate permit and inspection. (Ord. 15996 § A (part), 2005)

18.18.030 New buildings, new outdoor light fixtures and additions to existing facilities.

For all proposed new construction or additions to existing facilities, all new outdoor lighting fixtures, including but not limited to replacement light fixtures, shall meet the requirements of this Code. (Ord. 15996 § A (part), 2005)
(Ord. 17171, § 2, 8-18-2009)

18.18.040 Additions.

Additions, as regulated in Sections 18.18.030 and 18.18.230, shall require the submission of a complete inventory and site plan detailing any proposed new outdoor lighting. New lighting on the site shall meet the requirements of this Code with regard to shielding and lamp type. (Ord. 15996 § A (part), 2005)
(Ord. 17171, § 3, 8-18-2009)

18.18.050 Roadways.

Lighting for public and private roadways shall utilize only full cutoff light fixtures or cutoff light fixtures. (Ord. 15996 § A (part), 2005)

Article II. Definitions

18.18.060 Definitions.

Unless otherwise expressly stated, the following words and terms shall, for the purposes of this Code, have the meanings shown below:

"Class 1 lighting" means all outdoor lighting used for, but not limited to, outdoor sales or eating areas, assembly or repair areas, advertising and other signs, outdoor recreational facilities, city parks as defined in City Code Section 13.24.010 and other similar applications where color rendition is important to preserve the effectiveness of the activity. Recognized class 1 uses are: outdoor eating and retail food or beverage service areas; outdoor maintenance areas; display lots; assembly areas such as concert or theater amphitheaters.

"Class 2 lighting" means all outdoor lighting used for, but not limited to, illumination for walkways, roadways, equipment yards, parking lots and outdoor security where general illumination for safety or security of the grounds is the primary concern.

"Class 3 lighting" means any outdoor lighting used for decorative effects including, but not limited to, architectural illumination, United States, state, county, or city flags and monument lighting, and illumination of trees, bushes, or other landscaping features.

"Cutoff" and "full cutoff" shall have the meanings as defined by the lighting handbook.

"Directly visible" means allowing a direct line-of-sight to the light source or lamp.

"Director" means the building official as defined in Section 18.02.101.4 of this Code.

"Display lot" means outdoor areas where active nighttime sales activity occurs and where accurate color perception of merchandise by customers is required. A display lot shall entail one of the following specific uses: automobile sales, boat sales, tractor sales, building supply sales, gardening or nursery sales, assembly lots, swap meets. Additional uses may be designated as display lot as determined by the director.

"Flood lamp" means a specific form of lamp designed to direct its output in a specific direction (a beam) with a reflector formed from the glass envelope of the lamp itself, and with a diffusing glass envelope.

"Footcandle" means one lumen per square foot. Unit of illuminance. It is the luminous flux per unit area in the Imperial system. One footcandle equals approximately ten (10.76) lux.

"Full cutoff light fixture" or "fully shielded light fixture" means a luminaire with light distribution such that no light is emitted above the horizontal plane at the lowest portion of the light fixture.

"Glare" means the sensation produced by a bright source within the visual field that is sufficiently brighter than the level to which the eyes are adapted to cause annoyance, discomfort, or loss in visual performance and visibility; blinding light. The magnitude of glare depends on such factors as the size, position, brightness of the source, and on the brightness level to which the eyes are adapted.

"Illuminance" means the amount of light falling onto a unit area of surface (luminous flux per unit area), measured in lumens per square meter (lux) or lumens per square foot (footcandles).

"Installed" means the attachment, or assembly fixed in place, connected to a power source, of any outdoor light fixture.

"Lighting handbook" means the most recent edition of the lighting handbook of the Illuminating Engineering Society, NA or its successor publication.

"Light trespass" means light falling into an area contrary to the requirements of this Chapter.

"Lighting zones" means the four lighting zones are based on the zoning districts or overlays established by the Zoning Ordinance. Guidelines used to guide the delineation of the lighting zones are:

A. Lighting Zone E1. This zone shall include all zoning districts with a "planned mountain development" overlay.

B. Lighting Zone E2. This zone shall include the zoning districts of R-F, R-1, R-2, R-2A, R-3, R-3A, R-4, R-5, RMH, RMD, P-R I, SRR, P-R II.

C. Lighting Zone E3. This zone shall include the zoning districts of A-1, A-2, A-3, A-4, A-O, A-3/O, A-M, C-OP and S-D.

D. Lighting Zone E4. This zone shall include the current zoning districts of C-1, C-2, C-3, C-4, C-5, M-1, M-2, M-3, P-C, Q, and P-I.

"Lumen" means a unit of luminous flux; used to measure the amount of light emitted by lamps.

"Luminaire" means the complete lighting assembly (including the lamp, housing, reflectors, lenses and shields), less the support assembly (pole or mounting bracket); a light fixture. For purposes of determining total light output from a luminaire or light fixture (see under this section, "Outdoor light output, total"), lighting assemblies which include multiple unshielded or partially shielded lamps on a single pole or standard shall be considered as a single unit.

"Luminous tube" means a glass tube filled with a gas or gas mixture (including neon, argon, mercury or other gasses), usually of small diameter (10-15 millimeter), caused to emit light by the passage of an electric current, and commonly bent into various forms for use as decoration or signs. A "neon" tube does not include common fluorescent tubes.

"Lux" means a unit of illuminance equal to one lumen per square meter. One lux equals approximately 0.1 (0.093) footcandles.

"Monument" means a structure that has the sole purpose and use of providing writings, drawings or pictures to commemorate persons, events or the site at which the structure is located, but does not include signs that are regulated by Chapter 20.18, sculptures or statutes.

"Multi-class lighting" means any outdoor lighting used for more than one purpose, such as security and decoration, such that its use falls under the definition of two or more classes as defined for class 1, 2 and 3 lighting.

"Net acreage" means the total area of the development project. For parcels including those special uses listed in Sections 18.18.150, 18.18.160, 18.18.170 and 18.18.180 that are exempted from the lumens per acre caps of Section 18.18.080 (recreational facilities, city parks and outdoor display lots), the area devoted to the special use shall also be excluded from the net acreage.

"Opaque" means that a material does not transmit light from an internal illumination source. Applied to sign backgrounds, means that the area surrounding any letters or symbols on the sign either is not lighted from within, or allows no light from an internal source to shine through it.

"Outdoor light fixture" means an outdoor illuminating device, outdoor lighting or reflective surface, luminous tube, lamp or similar device, permanently installed or portable, used for illumination, decoration, or advertisement. Such devices shall include, but are not limited to lights used for:

A. Parking lot lighting;

B. Roadway lighting;

C. Buildings and structures;

D. Recreational areas;

E. Landscape lighting;

F. Billboards and other signs (advertising or other);

G. Product display area lighting;

H. Building or structure decoration;

I. Building overhangs and open canopies; and

J. City parks.

"Outdoor light output, total" means the initial total amount of light, measured in lumens, from all lamps used in outdoor light fixtures. The term includes all lights and luminous tubing used for class 1, class 2, class 3 and multi-class lighting, and lights used for external illumination of signs, but does not include lights used to illuminate internally illuminated signs or luminous tubing used in neon signs. For lamp types that vary in their output as they age (such as high pressure sodium, fluorescent and metal halide), the initial lamp output, as defined by the manufacturer, is the value to be considered. For determining compliance with

Section 18.18.080, total outdoor light output standards, the light emitted from lamps in outdoor light fixtures is to be included in the total output as follows:

A. Outdoor light fixtures installed on poles (such as parking lot luminaires) and light fixtures installed on the sides of buildings or other structures, when not shielded from above by the structure itself as defined in subsections B., C. and D. of this section, are to be included in the total outdoor light output by simply adding the initial lumen outputs of the lamps;

B. Outdoor light fixtures installed under canopies, buildings (including parking garage decks), overhangs or roof eaves where all parts of the lamp or luminaire are located at least five feet but less than ten feet from the nearest edge of the canopy or overhang are to be included in the total outdoor light output as though they produced only one-quarter of the lamp's rated initial lumen output;

C. Outdoor light fixtures installed under canopies, buildings (including parking garage decks), overhangs or roof eaves where all parts of the lamp or luminaire are located at least ten feet but less than thirty feet from the nearest edge of the canopy or overhang are to be included in the total outdoor light output as though they produced only one-tenth of the lamp's rated initial lumen output; and

D. Outdoor light fixtures installed under canopies, buildings (including parking garage decks), overhangs or roof eaves where all parts of the lamp or luminaire are located thirty or more feet from the nearest edge of the canopy or overhang are not to be included in the total outdoor light output. Such lamps must however conform to the lamp source and shielding requirements of Section 18.18.070.

"Outdoor recreation facility" means an area designed for active recreation, whether publicly or privately owned, including, but not limited to, baseball diamonds/fields, soccer and football fields, golf courses, city parks, basketball courts, athletic fields or tracks, racquetball courts, golf driving ranges, tennis courts and swimming pools.

"Property" means a parcel of real property that has a property identification number assigned to it by the Central Appraisal District.

"Searchlight" means a lighting assembly designed to direct the output of a contained lamp in a specific tightly focused direction (a beam) with a reflector located external to the lamp, and with a swiveled or gimbaled mount to allow the assembly to be easily redirected. Searchlights include such lights that are used commonly to sweep the sky for advertisement purposes.

"Seasonal decorations" means temporary outdoor light displays consisting of unshielded low-wattage incandescent lamps of fifteen watts or less.

"Sign, externally illuminated" means a sign illuminated by light sources from the outside.

"Sign, internally illuminated" means a sign illuminated by light sources enclosed entirely within the sign cabinet and not directly visible from outside the sign.

"Sign, neon" means a sign including luminous gas-filled tubes formed into text, symbols or decorative elements and directly visible from outside the sign cabinet.

"Spot lamp" means a specific form of lamp designed to direct its output in a specific direction (a beam) with a reflector formed from the glass envelope of the lamp itself, and with a clear or nearly clear glass envelope. Spot lamps are those lamps so designated by the manufacturers.

"Spot light" means a lighting assembly designed to direct the output of a contained lamp in a specific tightly focused direction (a beam) with a reflector located external to the lamp. (Ord. 16985 § 33, 2008; Ord. 15996 § A (part), 2005)
(Ord. 17171, § 4, 8-18-2009; Ord. No. 17390, § 22, 8-24-2010, eff. 9-1-2010; Ord. No. 17882, § 1, 10-2-2012; Ord. No. 17921, § 1, 12-18-2012)

Article III. Shielding and Total Outdoor Light Output Standards

18.18.070 Shielding standards.

All nonexempt outdoor lighting fixtures shall have shielding as shown in Table 18.18.070.

Table 18.18.070 LAMP TYPE AND SHIELDING STANDARDS [1,2,3,4]

	LIGHTING ZONE			
USE CLASS AND LAMP TYPE	**E4**	**E3**	**E2**	**E1**
Class 1 lighting (Color Rendition):				
Initial output greater than or equal to 1800 lumens	F	F	F	F
Initial output below 1800 lumens (2)	A(1)	A(1)	A(1)	F
Class 2 lighting (General Illumination):				
Initial output greater than or equal to 1800 lumens	F	F	F	F
Initial output below 1800 lumens (2)	A(1)	A(1)	A(1)	F
Class 3 lighting (Decorative)(3):				
Initial output greater than or equal to 1800 lumens	F	F	F	X
Initial output below 1800 lumens (2)	A(1)	A(1)	A(1)	F
Residential lighting (all Classes)(4):				
Initial output greater than or equal to 1800 lumens	F	F	F	F
Initial output below 1800 lumens (2)	A(1)	A(1)	A(1)	A(1)

Notes to Table 18.18.070

A = all types of light fixtures are allowed except that any spot or floodlight shall be aimed not higher than twenty-five degrees from the vertical line between the light fixture and the ground when light emitted from a light fixture is visible from any off-site residential property or public roadway.

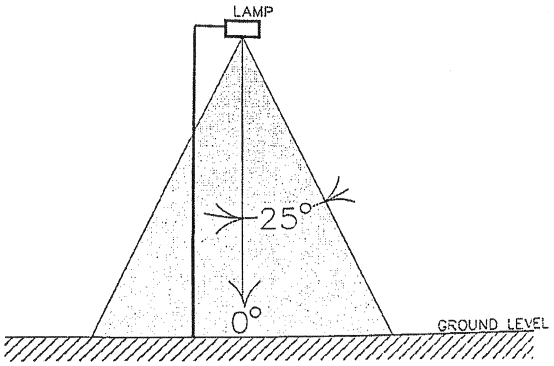

Illustration of Note "A"

F = only fully shielded light fixtures allowed

X = not allowed

1. Flood or spot lamps shall be aimed no higher than twenty-five degrees from the vertical line between the light fixture and the ground when the source is visible from any off-site residential property or public roadway.

Exception: seasonal decorations all be permitted in all lighting zones.

2. All class 3 lighting shall be extinguished between 11:00 p.m. (or when the business closes, whichever is later) and sunrise.

3. Residential refers to single family attached or detached uses located in any of the zone districts such as single-family detached and duplexes. Multiple-family residential uses, or apartments, must use standards for class 1, 2 and 3 lighting. (Ord. 15996 § A (part), 2005)

(Ord. 17171, § 5, 8-18-2009)

18.18.075 Interior high intensity discharge lights.

Interior high intensity discharge light fixtures shall be fully shielded light fixtures when the light from such light fixtures is visible from any public roadway or an off-site residential property.
(Ord. 17171, § 6, 8-18-2009)

18.18.080 Total outdoor light output standards.

Total outdoor light output shall not exceed the limits in Table 18.18.080. Seasonal decorations are not counted toward these limits; lighting used for external illumination of signs is counted, while lighting used for internal illumination of signs is not counted. (The values in this table are the maximum permitted levels and not intended as design standards; design standards shall be the lowest levels that meet the requirements of the task.)

Table 18.18.080 Maximum Total Outdoor Light Output Standards

Lumen Caps—Initial Lamp Lumens per Net Acre	Lighting Zone			
	E4	E3(4)	E2(4)	E1
Commercial and Industrial uses (1)				
Total (full cutoff+ unshielded)	1,000,000	200,000	50,000	125,000
Unshielded only	40,000	20,000	4,000	2,000
Residential uses (2,3)				
Total (full cutoff + unshielded)	20,000	10,000	10,000	10,000
Unshielded only	5,000	5,000	1,000	1,000

Notes to Table 18.18.080

1. This refers to all commercial and industrial uses and includes multiple family or apartment uses.
2. This refers to all single-family attached or detached uses.
3. In lighting zones E4-E 1, each residential single-family attached or detached home, duplex, triplex, quadruplex or townhome is allowed up to five thousand five hundred total lumens, or the amount indicated in this table based on the parcel's acreage, whichever is larger. Each is also allowed a maximum of five thousand five hundred lumens of unshielded ("A") lighting, provided Table 18.18.070 allows the lamp's type with "A" shielding. All residential spot or flood lamps permitted are to be aimed no higher than twenty-five degrees from the vertical line between the fixture and the ground when the source is visible from any off-site residential property or public roadway.
4. Public and private schools located in zones E2 and E3 may petition the director for an increase in the lumens per acre cap to the level permitted in zone E4. The director may allow an increase when the school submits an engineered design supporting the need of such increase.
5. For projects using a portion of a parcel, the calculation of the allowable lumen cap shall be based on a project area that includes only the building, parking and landscaping portions of the parcel. (Ord. 15996 § A (part), 2005)

(Ord. 17171, § 7, 8-18-2009)

18.18.090 Effective shielding standard.

All light fixtures that are required to be shielded shall be installed and maintained in such a manner that the shielding is effective as described in the definition in Section 18.18.060 for full cutoff light fixtures. (Ord. 15996 § A (part), 2005)
(Ord. 17171, § 8, 8-18-2009)

18.18.100 Light trespass standard.

A. Beyond the shielding requirements of Section 18.18.070, all light fixtures shall be located, aimed or shielded so as to minimize stray light trespassing across residential property boundaries.

B. Any lamp installed on a residential property in zone E1 and visible from any other residential property shall be shielded such that the lamp is not directly visible from that property.

C. Luminaires, spot lamps or spotlights which are aimed, directed or focused such as to cause direct light to be directed toward residential buildings, adjacent or nearby land, streets or roadways shall be redirected or their light output controlled as necessary to eliminate such conditions. (Ord. 15996 § A (part), 2005)
(Ord. 17171, § 9, 8-18-2009)

18.18.110 Multi-class lighting standard.

Multi-class lighting shall conform to the shielding and timing restrictions, if any, which apply to the most restrictive class. (Ord. 15996 § A (part), 2005)

Article IV. On-Premise and Off-Premise Signs

18.18.120 Externally illuminated sign standards.

External illumination for signs shall conform to all provisions of this Code. In particular, such lighting shall be treated as class 1 lighting and shall conform to the lamp source, shielding restrictions and lumen caps of Section 18.18.080. Upward-directed sign lighting is prohibited, unless as allowed by Section 18.18.310.A. (Ord. 15996 § A (part), 2005)
(Ord. No. 18366, § 1, 6-2-2015)

18.18.130 Internally illuminated sign and neon sign standards.

A. Outdoor internally-illuminated advertising signs constructed with faces of translucent materials and wholly illuminated from within do not require shielding. Colored or dark backgrounds with light lettering or symbols are preferred to minimize the detrimental effects of light pollution. Lamps used for internal illumination of such signs shall not be counted toward the lumen caps in Section 18.18.080.

B. Neon signs shall be treated as internally illuminated signs for the purposes of this Code, and shall not have their luminous outputs counted toward the lumen caps in Section 18.18.080. Neon lighting extending beyond the area considered to be the sign area (as defined in the sign code) shall conform to all provisions of this Code and shall be treated as class 3 (decorative) lighting.

C. Other internally-illuminated panels or decorations not considered to be signage according to the sign code (such as illuminated canopy margins or building faces), shall be considered decorative (class 3) lighting, and shall be subject to the standards applicable for such lighting, including but not limited to the lamp source, shielding standards and lumens per acre caps of Section 18.18.080. (Ord. 15996 § A (part), 2005)

18.18.135 Off-premise outdoor advertising signs.

Illumination of outdoor advertising off-premise signs is prohibited in lighting zone E1.
(Ord. 17171, § 10, 8-18-2009)

18.18.140 Curfews.

Illumination for all signs, both externally and internally illuminated, shall be turned off at the curfew times listed in Table 18.18.140 or when the business or portion thereof open to the public closes, whichever is later. Signs subject to curfews are required to have functioning and properly adjusted automatic shut-off timers. Internally illuminated signs may continue to be used and illuminated but must conform to the curfews as indicated.

Table 18.18.140 ILLUMINATED SIGN CURFEWS

	Lighting Zone			
	E4	E3	E2	E1
On-Premise and Off-Premise Signs	12 A.M. (midnight)	12 A.M. (midnight)	9 P.M.	9 P.M.

(Ord. 15996 § A (part), 2005)
(Ord. 17171, § 11, 8-18-2009)

Article V. Special Uses

18.18.150 Recreational facilities.

A. Lighting for outdoor recreation facilities to include city parks as defined in City Code Sections 13.24.010 in lighting zones E1, E2, E3, and E4, shall be considered class 1 (color rendition), as defined in the Lighting Handbook, and shall be exempt from the lumens per acre limits of Section 18.18.080.

B. Shielding. In lighting zones E1, E2, E3 and E4, full cutoff is required for outdoor recreation facilities. Football fields, soccer fields, golf courses and baseball diamonds designed for class III or IV levels of play (typically amateur or municipal

league, elementary to high school, training, recreational or social levels; cf. Lighting Handbook and Illuminating Engineering Society, NA RP-6 Sports and Recreational Area Lighting publication) or designed for class I and II levels of play (typically college, semi-professional, professional or national levels) shall utilize luminaires with minimal uplight consistent with the illumination constraints of the design. Where full cutoff light fixtures are not required and not utilized, acceptable luminaires shall include those which:

1. Are provided with internal and/or external glare control louvers and installed so as to minimize uplight and offsite light trespass, and

2. Are installed and maintained with aiming angles that permit no greater than five percent of the light emitted by each light fixture to project above the horizontal.

C. Illuminance. All lighting installations shall be designed to achieve no greater than the minimal illuminance levels for the activity as recommended by the Illuminating Engineering Society of North America (IESNA).

D. Off-site light trespass. The installation shall also limit off-site trespass (outside the parcel containing the recreational facility) to the maximum extent possible consistent with the illumination constraints of the design. For class III and IV levels of play, a design standard of one lux (0.1 fc) at the property line of any residential property at a vertical point five feet above grade, as measurable from any orientation of the measuring device, shall be required. For Class I and II levels of play, a design goal of one and one-half lux (0.15 fc) at the property line of any residential property at a vertical point five feet above grade, as measurable from any orientation of the measuring device, shall be required.

E. Engineering design. Every such lighting system shall be designed by a professional engineer currently registered in the State.

F. Curfew. All events shall be scheduled so as to complete all activity before the curfew listed in Table 18.18.150. Illumination of the playing field, court or track shall be permitted after the curfew only to conclude a scheduled event that began prior to the curfew that was unable to conclude before the curfew.

Table 18.18.150 SPORTS FACILITY AND DISPLAY LOT LIGHTING CURFEWS

Lighting Zone			
E4	**E3**	**E2**	**E1**
11 P.M.	10 P.M.	9 P.M. City Parks: 10 PM (1 Oct - 30 April) 11 PM (1 May—30 Sept)	8 P.M.

(Ord. 15996 § A (part), 2005)
(Ord. 17171, § 12, 8-18-2009; Ord. No. 17921, § 2, 12-18-2012)

18.18.160 Outdoor display lots.

A. Lighting for display lots shall be considered class 1 (Color Rendition), and shall be allowed a lumens per acre cap of two million.

B. Shielding. All display lot lighting shall utilize a full cutoff system that are installed in a fashion that maintains the full cutoff characteristics.

C. Illuminance. Lighting for display lots shall be considered class 1 (color rendition).

D. Off-site trespass. The display lot shall limit off-site light trespass (outside the parcel containing the display lot) to a maximum of 0.5 lux (0.05 fc) at the property line of any residential property at a vertical point five feet above grade, as measurable from any orientation of the measuring device, shall be required.

E. Engineering design. Every display lot lighting system shall be designed by a professional engineer currently registered in the state.

F. Curfew. Display lot lighting exceeding the lumens per acre cap of Section 18.18.080 shall be turned off at the curfew listed in Section 18.18.150 or within thirty minutes after closing of the business, whichever is later. Lighting in the display lot after this time shall be considered class 2 lighting, and shall conform to all restrictions of this Code applicable for class 2 lighting, including the lu-

mens per acre caps in Section 18.18.080. (Ord. 15996 § A (part), 2005)
(Ord. 17171, § 13, 8-18-2009)

18.18.170 Service station canopies.

A. Lighting class. Lighting for service station canopies shall be considered class 2 lighting (general illumination).

B. Shielding. All luminaires mounted on or recessed into the lower surface of service station canopies shall be full cutoff light fixtures and utilize flat lenses.

C. Total under-canopy output. The total light output used for illuminating service station canopies, defined as the sum of all under-canopy initial bare-lamp outputs in lumens, shall not exceed forty lumens per square foot of canopy in lighting zone E4, and shall not exceed twenty lumens per square foot in lighting zone E3. All lighting mounted under the canopy, including but not limited to luminaires mounted on the lower surface or recessed into the lower surface of the canopy and any lighting within signage or illuminated panels over the pumps, is to be included toward the total at full initial lumen output.

D. Lumen output. The lumen output of lamps mounted on or within the lower surface of a canopy is included toward the lumen caps in Section 18.18.080 and is subject to the provisions contained in the definition of "outdoor light output, total" in Section 18.18.060. Other lighting located under a canopy but not mounted on or within the lower surface is included toward the lumen caps in Section 18.18.080 at full initial output.

E. Off-site light trespass. The service station canopy lot shall limit off-site light trespass (outside the parcel containing the service station lot) to a maximum of 0.5 lux (0.05 fc) at the property line of any residential property at a vertical point five feet above grade, as measurable from any orientation of the measuring device, shall be required. (Ord. 15996 § A (part), 2005)
(Ord. 17171, § 14, 8-18-2009)

18.18.180 Other lighting on parcels with special uses.

On a property with special uses as listed above, all lighting not directly associated with the special use areas above shall conform to the lighting standards described in this Code, including but not limited to the lamp type and shielding requirements of Section 18.18.070 and the lumens per acre limits of Section 18.18.080. The net acreage for the determination of compliance with Section 18.18.080 shall not include the area of the athletic field or outdoor display lot, as regulated in Section 18.18.160; the area of any service station canopy shall be included in the net acreage. (Ord. 15996 § A (part), 2005)
(Ord. 17171, § 15, 8-18-2009)

Article VI. Plans and Evidence of Compliance

18.18.190 Submission contents.

Except for temporary exemption permits governed by Article IX of this chapter, the applicant for any permit required by any provision of this Code in connection with proposed work involving outdoor lighting fixtures shall submit (as part of the application for permit) evidence that the proposed work will comply with this Code. Even if no other such permit is required, the installation or modification (except for routine servicing and same-type lamp replacement) of any exterior lighting shall require submission of the information described below. The submission shall contain but shall not necessarily be limited to the following, all or part of which may be part or in addition to the information required elsewhere in this Code upon application for the required permit:

A. Plans indicating the location on the premises of all lighting fixtures, both proposed and existing on the site;

B. Description of all lighting fixtures, both proposed and existing. The description may include, but is not limited to, catalog cuts and illustrations by manufacturers (including sections where required); lamp types, wattages and initial lumen outputs; and

C. Photometric data, such as that furnished by manufacturers, or similar showing the angle of cut off of light emissions. (Ord. 15996 § A (part), 2005)
(Ord. 17171, § 16, 8-18-2009)

18.18.200 Additional submission.

The above required plans, descriptions and data shall be sufficiently complete to enable the director to readily determine whether compliance with the requirements of this Code will be achieved. If such plans, descriptions and data cannot enable this ready determination, the applicant shall additionally submit as evidence of compliance to enable such determination such certified reports of tests as will do so provided that these tests shall have been performed and certified by a recognized testing laboratory. (Ord. 15996 § A (part), 2005)

18.18.210 Subdivision plats.

If any subdivision proposes or is required to have installed street or other common or public area outdoor lighting, submission of the information as described in Section 18.18.190 shall be submitted with the illumination plans required by Title 19. (Ord. 15996 § A (part), 2005)

18.18.220 Lamp or light fixture substitution.

Changes to an approved plan of outdoor light fixture or the type of light source therein shall be subject to the approval of the director. (Ord. 15996 § A (part), 2005)
(Ord. 17171, § 17, 8-18-2009)

Article VII. Reserved

Article VIII. Prohibitions

18.18.230 Installation of nonconforming light fixtures and lamps.

The installation of any outdoor lighting fixture or lamp for new construction, additions, or new outdoor lighting fixtures, including but not limited to replacement light fixtures, to existing facilities not in compliance with this chapter is prohibited. (Ord. 15996 § A (part), 2005)
(Ord. 17171, § 18, 8-18-2009)

18.18.240 Laser source light.

The use of laser source light or any similar high intensity light for outdoor advertising, entertainment or decorative purposes, when projected above the horizontal, is prohibited unless a temporary exemption permit is obtained pursuant to sections 18.18.280 through 18.18.300. (Ord. 15996 § A (part), 2005)
(Ord. 17171, § 19, 8-18-2009; Ord. No. 17882, § 2, 10-2-2012)

18.18.250 Searchlights.

The operation of searchlights for non-governmental purposes is prohibited unless a temporary exemption permit is obtained pursuant to sections 18.18.280 through 18.18.300. (Ord. 15996 § A (part), 2005)
(Ord. 17171, § 20, 8-18-2009; Ord. No. 17882, § 3, 10-2-2012)

18.18.260 Adjustable light fixtures prohibited.

Outdoor light fixtures shall be in a fixed position and shall not have adjustable hinges or knuckles unless such light fixture is exempt from the shielding standards pursuant to Section 18.18.335. (Ord. 15996 § A (part), 2005)
(Ord. 17171, § 21, 8-18-2009)

18.18.270 Lighting causing light trespass.

A. If after complaint and investigation, the director finds that a light fixture directs light toward residential buildings, the director shall give written notice of such violation to the owner and/or to the occupant of such premises demanding that the violation be abated within ninety days of the date of written notice.

B. Light trespass onto residential property from lighting shall be remedied by redirecting the light fixture or by controlling the light output as necessary.

C. Light levels shall not exceed a maximum of 0.25 footcandles (2.5 lux) at the property line of any residential property at a vertical point five feet above grade.

D. Light trespass measurements shall be made at the property line of the residential site, with the meter held normal to a line between any offending light source(s) and the light meter. If measurement on private property is not possible or practical, light level measurements may be made at the boundary of the public right of way or at any other location on an adjacent property.

E. Measurement shall be made using a commercial cosine and color corrected meter having an accuracy tolerance of plus or minus five percent or better at one lux (0.1 footcandle). The meter shall have been calibrated within two years of the date of measurement by the manufacturer or by a certified illumination laboratory.

F. Measurements shall be taken using a 4.5″ long, 1.75″ +/- 0.25″ diameter thin wall black tube baffle atop the meter's photoelectric cell aperture to prevent any stray light from other sources from affecting the measurement. (Ord. 15996 § A (part), 2005)
(Ord. 17171, § 22, 8-18-2009)

Article IX. Temporary Exemptions

18.18.280 Temporary exemption requirements.

A. Temporary exemption permits apply to:

1. Carnivals, festivals, grand openings, concerts and other similar temporary events.

2. Construction, provided that such temporary exemption shall not apply to the use of lights otherwise prohibited under this chapter during hours of the day during which construction is prohibited by law.

3. Laser source light, provided that:

a. The laser source light shall not be directed onto residential property or the structures thereon or on the public right-of-way or any vehicles thereon and shall be aimed and directed, so as not to shine on any buildings; and

b. Applicant obtains all applicable state or federal approvals.

4. Searchlights, provided that:

a. The searchlight shall be aimed and directed, so as not to shine on any buildings; and

b. Applicant obtains all applicable state or federal approvals.

B. An applicant requesting a temporary exemption permit under this chapter shall submit such application at the time of the application for any other permit required for the temporary event that is required by this City Code.

C. Temporary exemption permits shall be requested no less than five city working days prior to the beginning of the temporary event.

D. Applicant shall pay the established fee. (Ord. 15996 § A (part), 2005)
(Ord. 17171, § 23, 8-18-2009; Ord. No. 17882, § 4, 10-2-2012)

18.18.290 Temporary exemption permit requests.

A temporary exemption permit request shall be subject to the approval of the director. Such request shall contain the following information:

A. Specific code exemption(s) requested;

B. Duration of requested exemption(s);

C. Proposed location on premises of the proposed light fixture(s);

D. Purpose of proposed lighting;

E. Information for each luminaire and lamp combination as required in Section 18.18.190;

F. Previous temporary exemptions, if any, and addresses of premises thereunder; and

G. Such other data and information as may be required by the director. (Ord. 15996 § A (part), 2005)
(Ord. 17171, § 24, 8-18-2009)

18.18.300 Approval—Limitation.

The director shall have five business days from the date of submission of the request for temporary exemption permit to act, in writing, on the request. If approved, the exemption shall be valid for not more than thirty consecutive calendar days

from the date of issuance of the approval. The approval shall be renewable upon further written request for a maximum of one additional thirty consecutive calendar-day period. The director is not authorized to grant more than one temporary permit and one renewal for a thirty consecutive calendar-day period for the same Property within one calendar year. (Ord. 15996 § A (part), 2005)
(Ord. 17171, § 25, 8-18-2009)

Article X. Other Exemptions

18.18.310 Nonconformance.

A. Bottom-mounted or unshielded on-premise or off-premise sign lighting shall be brought into compliance with the shielding standards of Section 18.18.070 no later than May 7, 2015. An existing off-premise sign may remain as upward directed sign lighting if LED type luminaires are utilized and installed no later than May 7, 2016. No exceptions to this section will be permitted after May 7, 2016.

B. Post top antique or acorn style luminaires that cannot achieve full cutoff may be used if they achieve cutoff.

C. There shall be no changes in type, size or wattage of either lamp or ballast or any alterations to structural members, including but not limited to poles and bases, without conforming to all applicable requirements of this Code.

D. All existing outdoor lighting fixtures shall be brought into compliance with the shielding standards of Section 18.18.070 not later than May 7, 2015. Compliance with lumens cap is not mandatory but is encouraged. (Ord. 15996 § A (part), 2005)
(Ord. 17171, § 26, 8-18-2009; Ord. No. 18366, § 1, 6-2-2015)

18.18.320 Flag illumination.

Illumination of city, county, state or U.S. flags with spot lights or flood lamps is exempt from all the requirements of this Code. (Ord. 15996 § A (part), 2005)

18.18.330 State and federal facilities.

Compliance with the intent of this Code by facilities that are owned, operated and maintained by the state or federal government is encouraged but not required. (Ord. 15996 § A (part), 2005)

18.18.335 Statutes and sculptures displayed for public viewing.

Illumination of statues or sculptures that are displayed in a manner that the public may view such statute or sculpture shall be exempt from the requirements of this Chapter.
(Ord. 17171, § 27, 8-18-2009)

18.18.340 Emergency lighting.

Emergency lighting, used by police, firefighting, or medical personnel, or public entities, including but not limited to water utilities, electric and gas companies or at their direction, is exempt from all requirements of this Code for as long as the emergency exists. (Ord. 15996 § A (part), 2005)
(Ord. 17171, § 28, 8-18-2009)

18.18.345 Seasonal decorations.

Seasonal decorations are exempt from all requirements of this chapter. Except that laser source lights or searchlights used in conjunction with seasonal decorations shall require a temporary exemption permit issued pursuant to sections 18.18.280 through 18.18.300.

A. Temporary exemption permits apply to:

1. Carnivals, festivals, grand openings, concerts and other similar temporary events.

2. Construction, provided that such temporary exemption shall not apply to the use of lights otherwise prohibited under this chapter during hours of the day during which construction is prohibited by law.

3. The temporary use of laser source light and searchlights, provided that temporary exemption permits issued for laser source light use shall be issued pursuant to the requirements of Section 18.18.240 and that temporary exemption permits issued for searchlight use shall be issued pursuant to the requirements of Section 18.18.250.

B. An applicant requesting a temporary exemption permit under this chapter shall submit such application at the time of the application for any other permit required for the temporary event that is required by this City Code.

C. Temporary exemption permits shall be requested no less than five city working days prior to the beginning of the temporary event.

D. The city is authorized to charge fees related to the issuance of temporary exemption permits. Such fees shall be in accordance with the fee schedule established pursuant to budget resolution or other resolution adopted by the city council.

(Ord. 17171, § 29, 8-18-2009; Ord. No. 17882, § 5, 10-2-2012)

18.18.350 Swimming pool and fountain lighting.

Underwater lighting used for the illumination of swimming pools and fountains is exempt from the lamp type and shielding standards of Section 18.18.070, though such lighting shall conform to all other provisions of this chapter. (Ord. 15996 § A (part), 2005)

18.18.355 Entertainment districts.

Entertainment districts established by the city council are exempt from all requirements of this chapter.

(Ord. 17171, § 30, 8-18-2009)

18.18.360 Fossil fuel lights.

All outdoor light fixtures producing light directly by the combustion of natural gas or other fossil fuels are exempt from all requirements of this Code. (Ord. 15996 § A (part), 2005)

18.18.365 Downtown.

The geographic area of downtown is exempt from all the requirements of this Chapter. For purposes of this section, downtown is the area bounded by: Paisano, Stanton, Loop 375, S. Oregon St., 6th St., S El Paso St. Paisano, S. Santa Fe St. to the intersection of Father Rahm Ave. From the intersection of Father Rahm and S. Santa Fe St. north and east of the railway right of way to the intersection of W. Paisano and S. Coldwell St, to W. San Franciso St. to S. Durango St., to E. Missouri to N. Santa Fe St. to Interstate 10 to N. Campbell to E. Main St. From the intersection of N. Campbell and E. Main St. south and west of the rail right of way to Virginia, to E. San Antonio to St. Vrain to Paisano. (Ord. 15996 § A (part), 2005)

(Ord. 17171, § 31, 8-18-2009)

18.18.370 El Paso Star on the Franklin Mountain.

The El Paso Star on the Franklin Mountain, operated as of the date of the ordinance codified in this chapter, is exempt from all requirements of this Code. (Ord. 15996 § A (part), 2005)

(Ord. 17171, § 28, 8-18-2009)

18.18.375 Historic properties.

Properties designated as federal, state, or local historic landmarks or that are within a federal, state, or local historic district shall be exempt from this chapter if there is a finding of an adverse impact to any significant historical, cultural, or archaeological element of the property as determined in writing by the El Paso historic landmark commission or by the Texas Historic Preservation Officer whenever the El Paso historic landmark commission is without jurisdiction to require review of proposed work pursuant to Chapter 20.20 of the El Paso City Code. (Ord. 16041 § 1, 2005)

(Ord. 17171, § 33, 8-18-2009)

18.18.376 City-owned facilities.

The following city owned properties and projects are exempt from complying with the intent of this code:

1. Spray parks;

2. The El Paso International Airport, which for the purposes of this section is from a point beginning at the intersection of Terminal Drive and Piper Court, north and west along Airway Boulevard to Convair Road, north and east along

Convair Road to the easternmost point of Terminal Drive, and south along Terminal Drive to the point of beginning, to include the airport terminal building and all property located within the Security Identification Display Area (SIDA) and the airport security perimeter.
(Ord. No. 18507, § 1, 5-31-2016; Ord. No. 018884, § 1, 12-11-2018)

Editor's note—Ord. No. 18507, § 1, adopted May 31, 2016, set out provisions intended for use as § 18.18.380. Inasmuch as there were already provisions so designated, this section has been codified as set out herein, at the discretion of the editor.

18.18.377 Heritage corridors.

Ornamental lighting including but not limited to string lights, lighted archways and spires located within the public rights-of-way for the following heritage corridors are exempt from all requirements of this chapter:

1. El Paso International Airport Corridor which is Airway Boulevard from Interstate 10 to Airport Road;

2. Kern Place Neighborhood Corridor which is Cincinnati Avenue which is from North Stanton Street to North Oregon Street; East Glory Road from North Mesa Street to North Oregon Street; and East Baltimore Avenue from North Stanton Street to North Mesa Street.
(Ord. No. 18665, § 1, 4-18-2017)

Editor's note—Ord. No. 18665, § 1, adopted April 18, 2017, repealed the former § 18.18.377, and enacted a new § 18.18.377 as set out herein. The former § 18.18.377 pertained to El Paso International Airport Corridor and derived from Ord. No. 18507, § 1, adopted May 31, 2016.

Article XI. Appeals

18.18.380 Appeals.

Any person aggrieved by any decision of the director made in administration or enforcement of this Code has the right of appeal to the appeals officer. (Ord. 15996 § A (part), 2005)
(Ord. 17171, § 34, 8-18-2009; Ord. No. 019762, § 5, 7-22-2025)

Article XII. Conflicts, Violations, Penalties and Severability*

18.18.390 Conflicts.

Where any provision of federal, state, or local law conflicts with any provision of this Code, the most restrictive shall govern unless otherwise regulated by law. (Ord. 15996 § A (part), 2005)

18.18.400 Violations.

Any person who violates a provision of this chapter shall, upon conviction, be guilty of a misdemeanor and punished by a fine not to exceed two thousand dollars. Each day the violation occurs shall constitute a separate offense. (Ord. 15996 § A (part), 2005)
(Ord. 17171, § 35, 8-18-2009)

18.18.410 Severability.

If any section, subsection, sentence, clause or phrase of this Code is for any reason held to be illegal, such decision shall not affect the validity of the remaining portions of this Code. (Ord. 15996 § A (part), 2005)

Article XIII. Effective Date†

18.18.420 Effective date.

The provisions of this chapter that were in effect from May 7, 2005 until the effective date of this ordinance shall remain in effect for building permits for which applications were made during that time. Building permits for which applications were made after the effective date of this ordinance shall be subject to this ordinance. (Ord. 15996 § A (part), 2005)
(Ord. 17171, § 36, 8-18-2009)

***Editor's note**—Inasmuch as there were two articles numbered as XI, this Article XI has been renumbered as Article XII, at the discretion of the editor.

†**Editor's note**—For purposes of sequential order, and at the editor's discretion, this article has been renumbered as Article XIII. See editor's note to Article XII.

Chapter 18.20

PLUMBING CODE*

Sections:

18.20.010 Short title.

18.20.020 Adoption.

18.20.020.1 Reserved.

18.20.030 Section 312.10.3 Backflow Inspection Records, added.

18.20.040 Section 403.3 Required public toilet facilities, exception added.

18.20.050 Section 412.5 Floor drains in mechanical rooms and boiler rooms, added.

18.20.060 Section 417.5.3 Shower receptor, added.

18.20.070 Section 604.8.3 Accessibility, added.

18.20.080 Reserved.

18.20.090 Reserved.

18.20.100 Section 605.4 Water Distribution Pipe, amended.

18.20.110 Section 608.16.5, Connections to lawn irrigation systems, amended.

18.20.120 Section 701.2 Sewer required, amended.

18.20.130 Reserved.

18.20.140 Reserved.

18.20.150 Reserved.

18.20.160 Section 708.1.3 Building drain and building sewer junction, amended.

18.20.170 Section 802.1.9 Condensate and Evaporative Cooler Waste, added.

18.20.175 Section 903.1.1 Roof Extension, amended.

18.20.180 Section 1003.3.1.1 No water-jacketed grease trap, added.

18.20.190 Table 1003.3.5.1 Capacity of Grease Interceptors, amended.

18.20.200 Section 1003.5 Sand interceptors in commercial establishments, amended.

18.20.220 Appendix B is adopted in its entirety.

18.20.222 Appendix C is adopted in its entirety.

18.20.224 Appendix D is adopted in its entirety.

18.20.226 Appendix E is adopted in its entirety.

18.20.230 Conflicting ordinances.

18.20.240 Section 603.1.1 Protection of Water Service Entrance, added.

18.20.250 Section 603.1.2 Plumbing within exterior walls, added.

18.20.260 Conflicting Ordinances.

18.20.010 Short title.

This chapter may be cited as the "Plumbing Code."

(Ord. No. 019528, § 1, 8-1-2023)

18.20.020 Adoption.

The book entitled "International Plumbing Code," 2021 Edition, a copy of which authenticated by the city clerk is on file in the city clerk's office, is adopted as the Plumbing Code of the city, as fully as if copied at length in this chapter, but with the changes set forth in this chapter and Chapter 18.02, the Building and Administrative Code of the City of El Paso.

(Ord. No. 019528, § 1, 8-1-2023)

***Editor's note**—Ord. No. 019528, § 6, adopted Aug 1, 2023, amended Ch. 18.20 in its entirety to read as set out herein. The former Ch. 18.20, §§ 18.20.010—18.20.260, pertained to similar subject matter and derived from Ord. No. 18513, § 1, adopted May 31, 2016.

18.20.020.1 Reserved.

18.20.030 Section 312.10.3 Backflow Inspection Records, added.

International Plumbing Code, 2021 Edition, Section 312.10.3 Backflow Inspection Records, is hereby added to read as follows:

312.10.3 Backflow Inspection Records. Records of inspections, tests and maintenance of the backflow assemblies shall be kept and made available to the building official upon request and to the El Paso Water Utilities in accordance with the rules and regulations of the public service board. Records shall indicate the procedure performed (inspection, test or maintenance), the organization that performed the work, the results and the date. Records shall be maintained by the owner, tenant or responsible person.
(Ord. No. 019528, § 1, 8-1-2023)

18.20.040 Section 403.3 Required public toilet facilities, exception added.

International Plumbing Code, 2021 Edition, Section 403.3 Required public toilet facilities, is hereby amended to add the following exception at the end of the section:

Exception: Small tenancies and areas located in stand-alone buildings or tenancies. Customers, patrons, visitors and employees need not be provided with public toilet facilities in small tenancies located in stand-alone buildings, structures or facilities when all of the following conditions are met:

1. The gross floor area of the tenancy does not exceed 200 square feet; and

2. The building, or structure is not used for the preparation, storage handling and sale of potentially hazardous food as defined in the Texas Food Establishment Rules of the Texas Department of State Health Services; and

3. Toilet facilities are provided elsewhere on the same site within 200 lineal feet of travel distance from the exempted tenancy; and

4. The site is provided with the minimum number of facilities required by International Plumbing Code, 2015 Edition, Section 403 and Table 403.1, and the owner or tenant in control of the toilet facilities required in condition 3, shall furnish to the building official a written and notarized statement that customers, visitors, patrons and employees of the exempted tenancy will have access to and use of these facilities; and structures used for the preparation, storage, handling and sale of food shall be connected to a water supply and provided with utensil and hand washing facilities as required by Title 9.12 of the City Code.
(Ord. No. 019528, § 1, 8-1-2023)

18.20.050 Section 412.5 Floor drains in mechanical rooms and boiler rooms, added.

International Plumbing Code, 2021 Edition, Section 412.5 Floor drains in mechanical rooms and boiler rooms is hereby added to read as follows:

Mechanical equipment rooms, boiler rooms and all similar equipment rooms shall have an approved floor drain for disposing of accumulation of liquid wastes incident to cleaning or recharging such equipment. Such floor drains shall be equipped with an approved trap priming or trap seal device as required in IPC Section 1002.4.
(Ord. No. 019528, § 1, 8-1-2023)

18.20.060 Section 417.5.3 Shower receptor, added.

International Plumbing Code, 2021 Edition, Section 417.5.3 Shower Receptor, is hereby added to read as follows:

421.5.1.1 Shower Receptor. Shower receptors shall have a finished curb, dam or threshold not less than one (1) inch below the sides and back of the receptor. The curb shall be not less than two (2) inches nor more than nine (9) inches in depth when measured from the top of the curb to the top of the drain. The finished floor shall slope uniformly toward the drain not less than one-fourth (¼) inch per foot nor more than one-half (½) inch, and floor drains shall be flanged to provide a watertight joint in the floor.

421.5.2 Shower Linings. All shower receptors shall be provided with an approved lining, except as noted herein. The adjoining walls and floors, enclosing field-constructed shower receptors shall be lined with copper or other approved materials listed in this Code, extending not less than three (3) inches beyond or around the rough jambs and not less than three (3) inches above finished thresholds. Recessed shower compartments need not be lined, provided the compartment is formed of concrete, is recessed a minimum of four (4) inches below the adjacent floor level, and the concrete is not less than three and one-half (3½) inches thick with an ultimate compressive strength of not less than two thousand (2000) pounds per square inch.

421.3 Shower Waste Outlet. An approved flanged drain shall be installed with shower subpans or linings. The flange shall be flush with the sub-base and be equipped with a clamping ring or other device to make a water-tight connection between the lining and the drain. The flange shall have weep holes to ensure constant drainage of water to sanitary drainage system. Shower receptacle waste outlets shall be not less than two (2) inches in diameter and shall have a removable strainer.
(Ord. No. 019528, § 1, 8-1-2023)

18.20.070 Section 604.8.3 Accessibility, added.

International Plumbing Code, 2021 Edition, Section 604.8.3 Accessibility, is hereby added to read as follows:

604.8.3 Accessibility. Installation shall be such as to make the regulator accessible without excavating or removing permanent structural or finished portions of the structure.
(Ord. No. 019528, § 1, 8-1-2023)

18.20.080 Reserved.

18.20.090 Reserved.

18.20.100 Section 605.4 Water Distribution Pipe, amended.

International Plumbing Code, 2021 Edition, Section 605.4 Water distribution pipe, is hereby amended to read as follows:

605.4 Water distribution pipe. Water distribution pipe shall conform to NSF 61 and shall conform to one of the standards listed in Table 605.4 Copper or copper alloy tubing used in inaccessible water distribution piping under slabs shall be minimum Type L. Any material subject to corrosion shall be protected when used in corrosive soils. All hot water distribution pipe and tubing shall have a minimum pressure rating of 100 psi at 180°F.
(Ord. No. 019528, § 1, 8-1-2023)

18.20.110 Section 608.16.5, Connections to lawn irrigation systems, amended.

International Plumbing Code, 2021 Edition, Section 608.16.5, Connections to lawn irrigation systems, is hereby amended to read as follows:

608.16.5 Connections to lawn irrigation systems. The potable water supply to lawn irrigation systems shall be protected against backflow by a pressure-type vacuum breaker or a reduced pressure principle backflow-preventer. Where chemicals are introduced into the system, the potable water supply shall be protected against backflow by a reduced pressure principle backflow-preventer.
(Ord. No. 019528, § 1, 8-1-2023)

18.20.120 Section 701.2 Sewer required, amended.

International Plumbing Code, 2021 Edition, Section 701.2, Sewer required, is hereby amended to read as follows:

701.2 Sewer required. Every building in which plumbing fixtures are installed and all premises having drainage piping shall be connected to a public sewer.

Exception: When a public sewer is not available within 300 feet of the property, an individual or private sewage disposal system may be utilized provided that such system is designed, installed and maintained in accordance with the requirements of Chapter 18.21 of the City Code.
(Ord. No. 019528, § 1, 8-1-2023)

18.20.130 Reserved.

18.20.140 Reserved.

18.20.150 Reserved.

18.20.160 Section 708.1.3 Building drain and building sewer junction, amended.

International Plumbing Code, 2021 Edition, Section 708.1.3, Building drain and building sewer junction, is hereby amended to read as follows:

708.1.3 Building drain and building sewer junction. There shall be a cleanout near the junction of the building drain and the building sewer. The cleanout shall be outside the building and shall be brought up to the finished ground level within ten (10) feet of the structure. An approved two-way cleanout is allowed as an alternative at this location to serve as a required cleanout for both the building drain and building sewer.
(Ord. No. 019528, § 1, 8-1-2023)

18.20.170 Section 802.1.9 Condensate and Evaporative Cooler Waste, added.

International Plumbing Code, 2021 Edition, Section 802.1.9 Condensate and Evaporative Cooler Waste, is hereby added to read as follows:

802.1.9 Condensate and Evaporative Cooler Waste. Waste from evaporative cooler's automatic water draining systems and condensate from air conditioner units, shall discharge into the building drainage system through an indirect waste line or discharged so that the effluent is used for watering landscaping or other vegetation.
(Ord. No. 019528, § 1, 8-1-2023)

18.20.175 Section 903.1.1 Roof Extension, amended.

903.1.1 Roof extension. Open vent pipes that extend through a roof shall be terminated not less than 12 inches above the roof.
(Ord. No. 019528, § 1, 8-1-2023)

18.20.180 Section 1003.3.1.1 No water-jacketed grease trap, added.

International Plumbing Code, 2021 Edition, Section 1003.3.1.1 No water-jacketed grease trap, is hereby added to read as follows: **1003.3.1.1 No water-jacketed grease trap.** No water-jacketed grease trap or grease interceptor shall be approved or installed.
(Ord. No. 019528, § 1, 8-1-2023)

18.20.190 Table 1003.3.5.1 Capacity of Grease Interceptors, amended.

International Plumbing Code, 2021 Edition, Table 1003.3.5.1 Capacity of Grease Interceptors, is hereby amended to read as follows:

Table 1003.3.5.1 Capacity of Grease Traps	
Total Flow-Through Rating (gpm)	**Grease-Retention Capacity (pounds)**
20 or less	40
25	50
35	70
50	100

(Ord. No. 019528, § 1, 8-1-2023)

18.20.200 Section 1003.5 Sand interceptors in commercial establishments, amended.

International Plumbing Code, 2021 Edition, Section 1003.5 Sand interceptors in commercial establishments, is hereby amended to read as follows:

1003.5 Sand Interceptors in Commercial Establishments. Sand and similar interceptors or traps for heavy solids shall have a water seal of not less than six (6) inches. Traps shall have a minimum of two compartments. Each compartment shall be a minimum of 30 inches by 30 inches with a minimum depth of three (3) feet, covered with a remov-

able grating that will allow the free entrance of waste. Trap walls and bottom shall be of concrete made watertight.

Exception: Sand traps are not required in commercial facilities containing less than 4 washing machines.

1003.5.1. Waste Line shall be a minimum of four (4) inches for uses other than residential swimming pools in which case the waste line may be three (3) inches. Outlet pipe shall leave the trap at a point not less than six (6) inches nor more than twelve (12) inches above the bottom and must rise vertically outside to the top of the trap where a properly sized cleanout shall be provided and formed by an inverted wye (y) so installed that the point of intersection of the wye (y) branches shall form the seal. Such seal shall be no less than twelve (12) inches in depth.

1003.5.2. Sand Traps installed within thirty (30) feet from a 3 or 4 inch stack shall have a (2) inch vent; sand traps installed over thirty (30) feet from a 3 or 4 inch stack shall have a three (3) inch vent.

(Ord. No. 019528, § 1, 8-1-2023)

18.20.220 Appendix B is adopted in its entirety.

(Ord. No. 019528, § 1, 8-1-2023)

18.20.222 Appendix C is adopted in its entirety.

(Ord. No. 019528, § 1, 8-1-2023)

18.20.224 Appendix D is adopted in its entirety.

(Ord. No. 019528, § 1, 8-1-2023)

18.20.226 Appendix E is adopted in its entirety.

(Ord. No. 019528, § 1, 8-1-2023)

18.20.230 Conflicting ordinances.

All ordinances and parts of ordinances in conflict with the provisions of this chapter are hereby repealed.

(Ord. No. 019528, § 1, 8-1-2023)

18.20.240 Section 603.1.1 Protection of Water Service Entrance, added.

International Plumbing Code, 2021 Edition, Section 603.1.1 Protection of Water Service Entrance is hereby added to read as follows:

603.1.1 Protection of Water Service Entrance. Water service entrance and risers to all structures shall be on the heated side of a conditioned space.

(Ord. No. 019528, § 1, 8-1-2023)

18.20.250 Section 603.1.2 Plumbing within exterior walls, added.

International Plumbing Code, 2021 Edition, Section 603.1.2 Plumbing within exterior walls is hereby added to read as follows:

603.1.2 Plumbing within exterior walls. Placement of plumbing within exterior walls is prohibited unless the walls are at minimum, 2 by 6 walls and adequate provision is made to protect such pipes from freezing in accordance with Section 305.6 of the International Plumbing Code. Placement of water lines in ceiling areas is prohibited unless the water lines are placed on the warm side with a minimum of 10 inch insulation on the exterior/roof side of the structure.

Exceptions:

a. A service entrance may enter a non-conditioned space provided that the riser/service entrance is within an approved, heated valve protective enclosure also known as a "hot box", or

b. Cross linked polyethylene, also known as PEX, or approved equal, is used as the service entrance material, and

c. Any hose bibs installed shall be freeze proof.

(Ord. No. 019528, § 1, 8-1-2023)

18.20.260 Conflicting Ordinances.

All ordinances and parts of ordinances in conflict with the provision of this chapter are hereby repealed.

(Ord. No. 019528, § 1, 8-1-2023)

18.20.224 Appendix D is adopted in its entirety.

(Ord. No. 18513, § 1, 5-31-2016)

18.20.226 Appendix E is adopted in its entirety.

(Ord. No. 18513, § 1, 5-31-2016)

18.20.230 Conflicting ordinances.

All ordinances and parts of ordinances in conflict with the provisions of this chapter are hereby repealed.

(Ord. No. 18513, § 1, 5-31-2016)

18.20.240 Section 603.1.1 Protection of Water Service Entrance, added.

International Plumbing Code, 2009 2015 Edition, Section 603.1.1 Protection of Water Service Entrance is hereby added to read as follows:

603.1.1 Protection of Water Service Entrance. Water service entrance and risers to all structures shall be on the heated side of a conditioned space.

(Ord. No. 18513, § 1, 5-31-2016)

18.20.250 Section 603.1.2 Plumbing within exterior walls, added.

International Plumbing Code, 2015 Edition, Section 603.1.2 Plumbing within exterior walls is hereby added to read as follows:

603.1.2 Plumbing within exterior walls. Placement of plumbing within exterior walls is prohibited unless the walls are at minimum, 2 by 6 walls and adequate provision is made to protect such pipes from freezing in accordance with Section 305.6 of the International Plumbing Code. Placement of water lines in ceiling areas is prohibited unless the water lines are placed on the warm side with a minimum of 10 inch insulation on the exterior/roof side of the structure.

Exceptions:

a. A service entrance may enter a non-conditioned space provided that the riser/service entrance is within an approved, heated valve protective enclosure also known as a "hot box", or

b. Cross linked polyethylene, also known as PEX, or approved equal, is used as the service entrance material, and

c. Any hose bibs installed shall be freeze proof.

(Ord. No. 18513, § 1, 5-31-2016)

Chapter 18.21

PRIVATE SEWAGE FACILITIES

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Article I. General

18.21.010 Definitions.

The following words and terms, when used in this chapter, shall have the following meanings, unless the context clearly indicates otherwise:

1. "Aerobic digestion" means the bacterial decomposition and stabilization of sewage in the presence of free oxygen.

2. "Anaerobic digestion" means the bacterial decomposition and stabilization of sewage in the absence of free oxygen.

3. "Bedrock" means a continuous horizontal layer of hardened mineral deposits that does not support growth of common plant life.

4. "Blackwater" means all sewage other than greywater that contains sufficient human or animal wastes to require the water to be treated prior to disposal to the earth's subsurface.

5. "Bore hole" means a drilled hole four feet or greater in depth and one to three feet in diameter.

6. "Caliche" means a white or pale yellow deposit of carbonate or sulfates of varying hardness that exists in the soil profile.

7. "Cesspool" means a non-watertight covered receptacle intended for the receipt and partial treatment of domestic sewage. This device is constructed such that its sidewalls and bottom are open jointed to allow the gradual discharge of liquids while retaining the solids for an anaerobic decomposition.

8. "Chemical" means a liquid or powdered waste that in sufficient quantity could have a biotoxic effect on on-site sewage facilities.

9. "Chemical toilet" means a portable toilet using chemicals to mask odors, discourage insect breeding, and provide partial disinfection.

10. "Collective system" means an on-site sewage collection, treatment, and disposal system designed to serve two or more sewage-generating units where the total combined flow from all units does not exceed five thousand gallons per day.

11. "Commission" means the Texas Commission on Environmental Quality.

12. "Composting toilet" means a disposal facility designed to decompose non-waterborne human wastes through bacterial action facilitated by aeration.

13. "Department" means the Texas Department of State Health Services.

14. "Evaportranspiration system" means a subsurface sewage disposal system which relies on soil capilarity and plant uptake to dispose of treated effluent through surface evaporation and plant transpiration.

15. "Gravelless drainfield pipe" means a generically labeled large diameter (usually eight or ten inches) geotextile fabric-wrapped piping product which is intended for use without gravel in a subsurface sewage disposal system.

16. "Greywater" means wastewater from clothes washing machines, showers, bathtubs, handwashing lavatories, and sinks that are not used for food preparation or disposal of chemical and biological ingredients.

17. "Holding tank" means a watertight container used to receive and store sewage in an anaerobic environment pending its delivery to, and treatment at, an approved treatment facility.

18. "Individual" means a person, group of persons, corporation, or entity permitted to own, or use real estate.

19. "Injection well" means a hole drilled into permeable soil which is intended to receive either raw sewage or the effluent from some form of treatment process.

20. "Innovative design" means detailed drawings and specifications describing the construction of on-site sewerage facilities that utilize materials and concepts not included in these standards.

21. "Institution" means any establishment other than a single-family residence or a duplex residence.

22. "Licensing authority" means the department of environmental services.

23. "Mobile home park" means any facility or area developed for lease or rental of space for the placement of two or more mobile homes.

24. "Mound system" means a soil absorption system which is installed in or below an artificially created mound of earth.

25. "Natural soil" means earthen materials deposited into place by natural processes and not disturbed by artificial processes.

26. "On-site aerobic treatment unit" means a watertight covered receptacle designed to receive, store and provide treatment to domestic sewage received through a building sewer. Its function is to separate solids from the liquid, promote the aerobic digestion of organic matter through the use of a forced air supply, store and aerobically digest settleable solids, and allow the clarified liquid to be disposed of in a subsurface disposal system.

27. "On-site sewerage facilities" means septic tanks, pit privies, cesspools, sewage holding tanks, injection wells used to dispose of sewage, chemical toilets, treatment tanks, collective systems, and all other facilities, systems, and methods used for the disposal of sewage other than the disposal systems operated under a permit issued by the Texas Commission on Environmental Quality.

28. "Pit privy" means a vented waterproof vault intended to store human wastes and allow its decomposition through natural processes. In this type of treatment, no external water source is provided and there is no direct discharge to the surface. It is recommended for use only in primitive and remote areas.

29. "Platted" means recorded with the county clerk's office in an official plat record.

30. "Portable toilet" means a small portable enclosure with a built-in toilet seat and a raw sewage holding tank. It is primarily intended for use at construction sites and other areas where temporary restroom facilities are required. Domestic sewage collected in these facilities is generally retained in an anaerobic state pending delivery to, and treatment at, an approved treatment facility.

31. "Pressure dosing" means the use of some form of pumping device and a network of small diameter piping to distribute treated effluent within a subsurface sewage disposal area.

32. "Private sewage facility" means all systems and methods used for the disposal of sewage, other than those operated in accordance with the terms and conditions of a valid waste discharge permit issued by the Texas Commission on Environmental Quality. "Private sewage facility" is synonymous with "private sewerage facility," and includes the following three units:

a. A generating unit, including, but not limited to, a residence or an institution;

b. A treatment unit, including, but not limited to, a septic tank or holding tank; and

c. The disposal unit, including, but not limited to, an evapotranspiration unit bed or an absorption trench.

33. "Sanitary control easement" means a document securing all land, within one hundred fifty feet of a public or private potable water well location, from pollution hazards that include, but are not limited to, solid and liquid waste disposal sites, animal pens, improperly sealed or abandoned wells, major sewage pumping and treatment plants, and drainage ditches which contain industrial waste discharges.

34. "Scum" means a mass of organic or inorganic matter which floats on the surface of sewage.

35. "Seepage pit" means an unlined covered excavation in the ground which is designed to operate in essentially the same manner as a cesspool.

36. "Septic tank" means a watertight covered receptacle designed to receive, store and provide treatment to domestic sewage received from a building sewer. Its function is to separate solids from the liquid, digest organic matter under anaerobic conditions, store the digested solids through a period of detention, and allow the clarified liquid to be disposed of in a subsurface disposal system.

37. "Sewage" means water which contains, or which has been in contact with, organic and inorganic contaminants such as human or animal wastes, vegetable matter, cooking fats and greases, laundry and dishwashing detergents, and other chemical compounds and waste products.

38. "Single-family dwelling" means a habitable structure constructed on, or brought to its site, and occupied by one or more persons.

39. "Sludge" means a semiliquid mass of partially decomposed organic and inorganic matter which settles at or near the bottom of a receptacle containing sewage.

40. "Soil" means the unconsolidated mineral material on the surface of the earth that serves as a natural medium for the growth of plants.

41. "Soil absorption system" means a subsurface sewage disposal system which relies on the soil's ability to absorb moisture and allow its dispersal by lateral and vertical movement through and between individual soil particles.

42. "Split system" means a wastewater disposal system that treats and disposes of blackwater and greywater separately.

43. "Substantial modification to on-site sewerage facilities shall include replacement of a septic or aerobic tank, addition of a septic or aerobic tank to a system, any extension or expansion of an existing disposal bed.

44. "Subsurface sewage disposal system" means a network of perforated piping installed below ground level which is used to distribute pretreated sewage effluent over a given disposal area.

45. "Ultra-low-flow toilets" means toilets that use one and one-half gallons or less per flush. (Ord. 16818 §§ 1—3 (part), 5, 2008; Ord. 9718 § 1, 1989; Ord. 9448 (part), 1988)

18.21.020 Scope of chapter.

This chapter will govern the design, construction, and operation of all private sewage facilities which have a potential discharge that does not exceed five thousand gallons per day. All private sewage facilities with potential discharges in excess of five thousand gallons per day shall be designed, constructed and operated in accordance with the requirements of the Texas Commission on Environmental Quality. (Ord. 16818 § 2 (part), 2008; Ord. 9448 (part), 1988)

Article II. Administration

18.21.025 Stop work orders.

Upon notice from the licensing authority, work upon any private sewage facility that is being done contrary to the provisions of this code, or in a dangerous or unsafe manner shall immediately be stopped. Such notice shall be in writing; and shall be given to the owner of the property, or to his agent, or to the person doing the work; and shall state the conditions under which work may be resumed. (Ord. 9718 § 2, 1989)

18.21.030 Requirements for new private sewage facilities.

A. A permit to construct shall be obtained from the licensing authority prior to commencing the construction or installation of, or a substantial modification to, a private sewage facility. Such permit shall be issued upon a finding that construction can commence.

B. To make an application for a permit to construct, the applicant shall submit to the licensing authority the following:

1. A properly completed application form;

2. A receipt showing payment to the city comptroller of the required fee;

3. The results of the percolation tests performed by a registered professional engineer or registered professional sanitarian (either having demonstrated expertise in conducting percolation tests to the licensing authority);

4. A drawing or drawings to scale reflecting that the proposed private sewage facility will comply with this chapter and demonstrating that the lot or tract is large enough for the private sewage facility to be constructed thereon;

5. A statement or other evidence that demonstrates that the requirements set forth in Section 18.20.110 of this code have been met;

6. Any additional information that the licensing authority may require.

C. The completed application and all additional information submitted shall not contain any false or misleading information or conceal any material facts and shall be sworn to and notarized.

D. A registered professional engineer shall design all private sewage facilities serving institutions which will discharge in excess of five hundred gallons per day of sewage, and shall affix his seal to such design. Said designs shall be made in accordance with this chapter and good engineering judgment.

E. A registered professional engineer shall design all private sewage facilities utilizing evapotranspiration beds for effluent disposal, utilizing aerobic treatment processes, all pressure dosing system, all mound systems, all collective systems, all systems for institutions and all other innovative systems and shall affix his seal to such design. However, any such system design may be approved without such engineer's seal at the discretion of the licensing authority in those instances where a similar plan has been provided for similar environmental conditions.

F. Upon completion of the private sewage facility designed under subsections D and E of this section, and prior to issue of a license to operate, a registered professional engineer's certification may be required at the discretion of the licensing authority indicating that the installation had been inspected and it was installed in accordance with the design drawings and specifications. (Ord. 9718 § 3, 1989; Ord. 9448 (part), 1988)

18.21.040 Final inspection.

A. Within ten days after a proper and complete application has been made, the licensing authority shall make a finding on the issuance of a permit, based upon the information contained in the completed application and any other information available to the licensing authority.

B. Upon a finding that construction can commence, a permit to construct shall be issued to the applicant. Upon a finding that a permit to construct cannot be issued, the licensing authority shall so notify the applicant in writing within ten days of that finding and shall include the specific reasons for denying the issuance of a permit. (Ord. 9448 (part), 1988)

18.21.050 Expiration of permit to construct.

A permit to construct shall expire one hundred eighty days from the date of issuance unless construction has been completed on the private sewage facility for which the permit was issued. An expired permit may be reissued provided the conditions under which the permit was originally issued have not changed. A fee will be charged to defray the cost of reissuance. When a permit has expired and the original conditions have changed, a new application must be submitted with a new application fee. (Ord. 9448 (part), 1988)

18.21.060 License to operate.

A. A license to operate shall be obtained from the building official prior to operating a new private sewage facility. Such license shall be issued after satisfactory completion and approval of construction.

B. Each new private sewage facility shall be inspected and approved by the department of environmental services prior to the final covering of the facility. The applicant or installer shall notify the department of environmental services that an inspection is desired at least three days, excluding weekends and legal holidays, prior to the need for inspection. The applicant or installer shall provide whatever reasonable assistance the department of environmental services requests in order to make the inspection.

C. At the time of an inspection and issuance of a written site approval form, the department of environmental services shall within ten days make a written finding on the issuance of a license, based upon the information obtained from the inspection and any other information available to the licensing authority and shall furnish said finding to the building official within ten days.

D. Upon a finding that the applicant or installer has complied with all applicable code provisions, tendered all required fees and the use of the new private sewage facility will not cause pollution, injury to the public health, or nuisance conditions and is not in conflict with this chapter and upon payment of appropriate fees, a license to operate the facility shall be issued to the applicant.

E. Upon a finding that a license to operate cannot be issued, the department of environmental services shall so notify the applicant in writing within five days of that finding and shall include the specific reasons for denying the issuance of a license.

F. Licenses to operate issued under the authority of this chapter shall be for an indefinite period and shall be transferred to a succeeding owner. Upon the request of a new owner of a licensed private sewage facility, the department of environmental services shall transfer the license to that new owner, provided the private sewage facility has not been substantially modified. (Ord. 16985 § 37, 2008; Ord. 16818 § 6, 2008: Ord. 9718 § 4, 1989; Ord. 9448 (part), 1988)
(Ord. No. 17390, § 24, 8-24-2010, eff. 9-1-2010)

18.21.070 Existing private sewerage facilities.

A. Private sewage facilities in use on July 26, 1988 are not required to be licensed, except as provided in subsection C of this section, or rebuilt in accordance with this chapter, provided the facility is not causing pollution, a threat to the public health, or nuisance conditions, or has not been substantially modified.

B. If an existing private sewage facility is causing pollution, a threat to the public health, or nuisance conditions, or has been substantially modified after July 26, 1988, then the private sewage facility shall be licensed in accordance with Section 18.21.030.

C. In order to provide a basis for future planning of water and wastewater services, encourage the protection of community health, enhance the value of existing homes and facilitate the future sale of such homes, the owner of any residential private sewage facility which has not previously been licensed by the licensing authority shall apply for a license to operate the facility. This subsection shall not apply to any person currently under pending enforcement action or to any person who installed a system for compensation. The licensing authority shall issue the license to operate upon receiving a written application giving the name of the system owner, the location of the system, the lot size, approximate number of persons served by the system, the approximate age and a general description of the system, and a statement that the system is not overflowing onto the surface or open to the surface. Any such systems registered within two years of the enactment of this chapter shall be entitled to a partial waiver of fees. (Ord. 9448 (part), 1988)

18.21.080 Innovative designs.

Designs for on-site sewerage systems approved by the Texas Commission on Environmental Quality pursuant to its evaluation program for innovative designs shall be deemed designed in accordance with this chapter. New and innovative designs for on-site sewerage systems not covered by the design standards of this chapter must be submitted to the Texas Commission on Environmental Quality for their approval. (Ord. 16818 § 1 (part), 2008; Ord. 9448 (part), 1988)

18.21.090 Abandoned facilities.

A. Every abandoned building (house) sewer or part thereof, shall be plugged or capped in an approved manner within five feet of the property line.

B. Every cesspool, septic tank and seepage pit which has been abandoned or has been discontinued otherwise from further use or to which no waste or soil pipe from a plumbing fixture is connected, shall have the sewage removed therefrom and be completely filled with earth, sand, gravel, concrete or other approved material.

C. The top cover or arch over the cesspool, septic tank, or seepage pit shall be removed before filling and the filling shall not extend above the top of the vertical portions of the sidewalls or above the level of any outlet pipe until inspection has been made, following which the cesspool, septic tank or seepage pit shall be filled to the level of the top of the ground.

D. No person owning or controlling any cesspool, septic tank, or seepage pit on his own premises or in any abutting portion of a public street, alley or other public property, shall fail, refuse or neglect to comply with the provisions of this section.

E. Where disposal facilities are abandoned consequent to connecting any premises with the public sewer, the permittee making the connection shall fill all abandoned facilities as required by the licensing authority within thirty days from the time of connection to the public sewer. (Ord. 9448 (part), 1988)

18.21.100 On-site sewage disposal board of exceptions.

A. There is established a board to be called the on-site sewage disposal board of exceptions, which shall consist of five members appointed by the mayor and city council. The board shall be composed of: one consumer, one person con-

nected with public health, one sewer system installer, one developer and one registered professional engineer. Alternatives shall be appointed for each position as replacements in case of a regular member's absence or conflict of interest. The members of the board shall serve without compensation.

B. Of the regular members first appointed, three shall be appointed for a term of four years and two shall be appointed for a term of two years, and thereafter all regular members shall be appointed for terms of four years. Alternate members shall be similarly appointed and have similar terms of office.

C. Three members of the board shall constitute a quorum. The board shall establish rules for its procedures not inconsistent with the city Charter and this code; such rules shall include provisions for the election, terms and duties of such officers as the board deems necessary. (Ord. 9448 (part), 1988)

18.21.110 Exception.

A person desiring an exception to any requirement of this chapter shall file three copies of a written request with the licensing authority stating: (A) The nature of the exception requested; (B) Specific reasons that justify the granting of the exception; and (C) Any information that the licensing authority reasonably requests. Requests for exceptions or variances shall be considered on an individual basis. The burden of proof is the responsibility of the registered professional engineer or registered professional sanitarian responsible for the design. Within thirty days after the receipt of said request, the licensing authority shall review the request and reply to the applicant in writing either granting or denying the request. If the request is denied, the licensing authority shall include the reasons for denial in the reply. (Ord. 9448 (part), 1988)

18.21.120 Appeal.

A. Any person aggrieved by an action or decision of the licensing authority made hereunder may, within thirty days of the date of the document giving notice of the action or decision, or within thirty days of the action, if no document is given, appeal to the on-site sewage disposal board of exceptions.

B. The appeal shall be initiated by filing a written objection with the board in triplicate. The written objection shall state what the complainant believes the action or decision of the licensing authority should have been and the reasons therefor. A copy of the document containing the notice of the complained of action or decision, or a written statement of the complained of action or decision, if no document was given, shall be attached to said written objection.

C. Upon receipt of said written objection and attachment, the board shall set the same down for a hearing to be held within the next thirty days and advise all parties of the date, time, and place of the hearing.

D. At hearings before the board, all witnesses shall be sworn. The board shall hear the testimony of the licensing authority and any witnesses the licensing authority may call. The board shall hear the testimony of the complainant and any witnesses the complainant may call. The board shall review all documents and exhibits submitted by the parties. The board shall not be bound by formal rules of evidence and shall control the evidence, reserving the power to exclude or limit testimony or exhibits it does not consider relevant.

E. The board shall maintain an accurate record of the evidence adduced at the hearing.

F. Within ten days of the close of the hearing, the board shall reduce to writing its report, which shall consist of a finding of facts and its decision, and shall notify the licensing authority and the complainant of its decision. The board shall file the original of its report with the city clerk, shall keep one copy for itself, shall send one copy to the complainant, and shall send one copy to the licensing authority.

G. If the licensing authority or the complainant is dissatisfied with the board's decision, he may, within thirty days from the date the board filed its report, file a written objection with the city clerk. When such an objection is filed, the clerk shall place the matter on the agenda of city council for review at the next meeting of city council that is at least ten days after the date of the filing of the objection. The city clerk shall notify the licensing authority and the complainant that the matter is on the agenda.

H. When the matter comes before city council, the city council shall review the matter, considering such information as is in the board's file and report along with such other evidence as city council may deem relevant and as may be offered by the licensing authority or the complainant. The city council shall

either affirm, reverse, or modify the decision of the board.

I. These provisions for appeal are not exclusive, but are cumulative of any other remedies at law or in equity. (Ord. 9448 (part), 1988)

Article III. Lawful Discharges and General Requirements

18.21.130 Lawful discharges.

After the adoption of this chapter, only the following types of sewage discharges shall be lawful:

A. Sewage discharged into an organized disposal system operating under a valid permit issued by the Texas Commission on Environmental Quality or by the licensing authority;

B. Sewage discharged into a private sewage facility designed, installed, licensed, operated, and maintained in accordance with this chapter;

C. Sewage discharged into an existing private sewage facility that is in use on the effective date of this chapter, and has not been substantially modified since the effective date of this chapter; such a facility shall not be operated or maintained in such a manner as to cause pollution, a threat to the public health, or nuisance conditions. (Ord. 16818 § 2 (part), 2008; Ord. 9448 (part), 1988)

18.21.140 Requirements.

A. No person, except the person owning or having the right of possession and use of the parcel of land upon which a proposed private sewage facility is to be located, or a contractor licensed by the licensing authority to install private sewage facilities, may apply for a private sewage facility permit. The license to operate shall be issued only to the person owning or having the right of possession and use of the land.

B. The design, construction, and installation of any new private sewage facility and the maintenance of any private sewage facility shall, at a minimum, meet the requirements set forth in this chapter.

C. The construction, installation, or substantial modification of a private sewage facility shall be made in accordance with the approved design and requirements of the permit to construct issued therefor.

D. No component of a private sewage facility shall be covered until an inspection by the licensing authority has been made; provided, however, absorption trenches or beds, or evapotranspiration beds may be partially backfilled, but all ends and other critical areas shall not be covered until the licensing authority has determined, as evidenced by the issuance of a written site approval form that the installation, construction, or substantial modification complies with this chapter, or other special conditions specified in the permit.

E. No person may cause, suffer, allow, or permit the operation or use of a new private sewage facility unless a written site approval form, license, or necessary license amendment therefor, has first been issued.

F. No person may cause, suffer, allow, or permit the construction or installation of a private sewage facility on a lot or tract that is smaller than that required to meet the requirements set forth in this code.

G. The effluent from a private sewage facility, whether using an aerobic or anaerobic treatment unit, must be discharged into a properly designed and constructed absorption or evapotranspiration unit and shall not be discharged to the ground surface without first obtaining appropriate permits from the Texas Commission on Environmental Quality; into or adjacent to any water in the state or in a manner which violates water quality standards.

H. No person may cause, suffer, allow, perform or permit the construction or installation of, or a substantial modification to, a private sewage facility unless a permit therefor has first been issued or there is an emergency. In emergency situations, the owner or licensed installer of a private sewage facility shall provide an oral statement to the licensing authority within two days describing the need for emergency modifications. An emergency shall be defined as an event or set of circumstances so unexpected as to prevent the owner from filing an earlier application for modification. After any oral statement, the owner shall provide the licensing authority with the neces-

sary statements and information within seven days after the oral application.

I. No person may cause, suffer, allow, or permit the maintenance of a private sewage facility in such a manner as to cause pollution, injury to public health, or nuisance conditions. (Ord. 16818 § 2 (part), 2008; Ord. 9448 (part), 1988)

Article IV. Design Standards for Site Evaluation

18.21.150 Residential lot sizing.

A. No design for an on-site sewerage facility shall be approved for a lot less than five acres unless the lot is located in a subdivision approved by the city plan commission.

B. Smaller Lots or Tracts. On smaller lots or tracts, approved by the city plan commission on a preliminary or final basis prior to January 1, 1988, an on-site sewerage facility may be permitted to be constructed and licensed to operate if it meets the following criteria: it must be demonstrated by a thorough investigation of a registered professional engineer or registered professional sanitarian (either having demonstrated expertise in on-site sewage system design) that an on-site sewerage facility on one of these lots can be operated without causing a threat or harm to an existing or proposed water supply system or to the public health, or creating the threat of pollution or nuisance conditions. The foregoing demonstration will be presumed to have been made when it is shown that an on-site facility can be constructed which meets the design standards of the Texas Commission on Environmental Quality in effect on December 31, 1987 and entitled "Construction Standards for Private Sewage Facilities." The foregoing demonstration will also be presumed to be made if a sewage disposal plan or a site specific design for the lot was approved by the department of environmental services prior to the adoption of the ordinance codified in this chapter. (Ord. 16818 § 1 (part), 3 (part), 2008; Ord. 9448 (part), 1988)

18.21.160 Soil technology and disposal method selection.

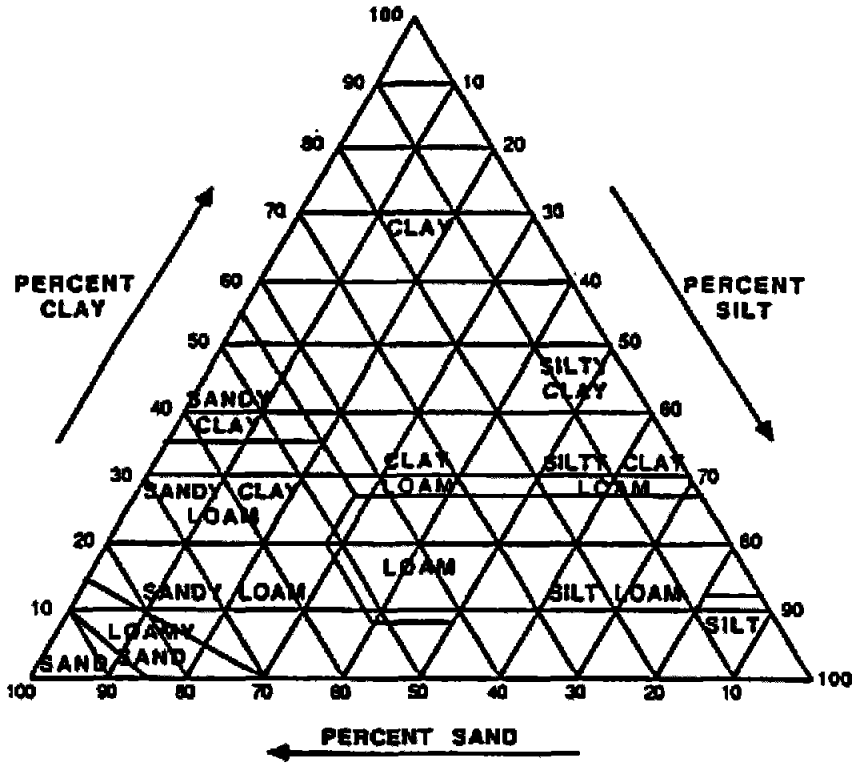
A. Prior to project building construction, a site evaluation, soil characterization study, and project component positioning must be performed by a registered professional engineer, or registered professional sanitarian. Site evaluation is a combination of field inspection, laboratory testing, and desk top analysis. It includes a thorough understanding of the codes and regulations governing the use of the site. The following are the required elements of the evaluation.

B. Topography. A site's topography relates to the changes in surface height over the site's total area. Topography can influence the choice of system used. For instance, pressure dosing may be the only type of system possible where the only acceptable location for the disposal area is at a higher elevation than the treatment unit. Grading plans to alter the topography may be used in order to evaluate whether the site can be used. Care must be taken to protect or replace the site's topsoil.

C. Soil Characteristics. The most important characteristics of soil are the ability to absorb fluid, provide adequate treatment, and convey the treated water under ground. Permeability is the characteristic relating to ease of water movement through soil. The main properties indicative of absorption capacity are soil texture, (see Table 18.21.160(A)) structure, color, thickness of permeable strata and swelling characteristics.

1. Soil Properties. Soil properties are discussed in detail by the United States Department of Agriculture, Soil Conservation Service (USDA-SCS), in the soil survey report for El Paso County. This survey includes general soil maps which outline the areas of different soils onto aerial photos. General information is given regarding the soil's suitability for sewage effluent

Table 18.21.160(A)
USDA SOIL TEXTURAL CLASSIFICATIONS



Clay— Smaller than 0.002 millimeters in diameter

Silt — 0.05 to 0.002 millimeters in diameter

Sand — 2.0 to 0.05 millimeters in diameter

disposal on a broad scale and can be used for preliminary evaluation.

2. Field Investigation. A careful field investigation must be made by persons trained or having qualified experience in soils science or on-site sewage disposal to determine the capability of a site to absorb and treat wastewater. The investigation should be done during the wettest season of the site. The soil evaluation should address the eight site characteristics listed in Table 18.21.160(B). A site plan must be submitted to the local Licensing Authority showing the proposed location of the various components of the on-site sewage system and the existing or future improvements, lot lines and any other item that restricts the choices of component locations.

D. Groundwater. Seasonal high groundwater (perched water) tables can exist in any area of the state. Under such conditions, it is possible to locate perched water near the ground surface during wet periods each year. This situation is the result of seasonal rain storm runoff permeating into a shallow soil mantle that lies upon an impermeable material like a solid rock or very dense clay. The mechanism for the removal of this water is by very slow draining to open channels or areas not influenced by clay or rock. Some moisture is taken upon by evaporation and transpiration of plants that are rooted into the permeable top soil.

E. Flooding. Usual site development requires that the structure be built on the highest portion of the site. The sewage system is developed in the remaining area of the site that is lower than the structure. Unfortunately, the lower area of a site may be subject to flooding as it naturally receives storm runoff from all areas upstream of it. Careful evaluation of flooding potential is necessary to determine whether flood preventative measures must be incorporated into the on-site sewage system. All of a soil absorption system must be constructed out of the flood-prone area, and not within areas subject to inundation or erosion by flood waters or rainfall runoff. An applicant for a permit to install a sewage system shall consult with the local flood plain ordinance administrator, county engineer, State Highways and Public Transportation Department, nearest river authority, Farmers Home Administration, Federal Emergency Management Agency, and other officials who may have information regarding the potential for flooding at the disposal site.

F. Solid and Fractured Rock. Solid or fractured rock underlying a thin absorptive soil mantle which is less than four feet thick poses two different problems to the on-site sewage system user. Solid material will reduce the absorptive capacity of a site while fractured rock may act as the mechanism for direct pollution of an aquifer that lies under the site. Percolation tests in these materials are unreliable and must not be used to size the sewerage system.

G. Caliche. Deposits of a white-to-pale yellow mineral form of calcium carbonate and related compounds of variable thickness and hardness that should be carefully inspected by a soils scientist or qualified local authority to determine site suitability for treated sewage absorption. Caliche has several forms that may or may not allow the site to be developed as a sewage absorption area. However, if a soils scientist or qualified local authority is unavailable, an evaportranspiration system can be installed if climatic conditions are appropriate.

H. Offsets from Property Lines. Minimum spacings from adjacent property owners must be adhered to. A common property line may be built upon with fencing or masonry walls. The area may serve as natural or artificial drainage for storm runoff. For these reasons, private on-site sewerage systems must not be built on these spacings, unless there is a written agreement between the adjacent property owners involved.

I. Clearances from Structures and Surface Improvements. Table 18.21.160(C) indicates clearance requirements relating to structures and surface improvements. Structure foundations or surface improvements, such as swimming pools, concrete curbs, landscaping, lawn sprinklers, concrete, asphalt, wood decks, or other types of

Table 18.21.160(B)
Criteria for Soil Absorption of Sewage Effluent Developed for Site Specific Evaluations

Site Characteristic	Classification: Suitable	Classification: Provisionally Suitable*	Classification: Not Suitable
Topography	Slopes 0 — 15%	Slopes 15 — 30%	Slopes greater than 30% Complex slopes
Subsoil Texture	Sandy soils Loamy soils	Clayey soils with low shrink-swell potential	Clayey soils with high shrink-swell potential
Subsoil Structure		Angular or sub-angular; Blocky	Platy structure; Weathered rock; Massive clayey soils
Soil Depth	Weathered rock or consolidated bedrock greater than 48 inches below ground surface	Weathered bedrock or consolidated rock from 36 to 48 inches below ground surface	Weathered rock or consolidated bedrock less than 36 inches below ground surface
Restrictive Layer	None within 36 inches of the ground surface		Restrictive horizon within 36 inches of the ground surface or below the trench bottom
Soil Drainage	No drainage mottles within 36 inches of the ground surface		Drainage mottles (chroma 2 or less) within 36 inches of the ground surface
Flooding			Areas subject to a possible flood; depressional areas without adequate drainage
Soil Permeability	Greater than or 5 min/inch but less than or equal to 60 min/inch		Less than or equal to 5 min/inch or greater than 60 min/inch. Unselective fill materials groundwater

*Soil may be reclassified from unsuitable to provisionally suitable under certain conditions using acceptable site or system modifications.

Table 18.21.160(C)
Minimum Required Distances in Feet for Conventional Systems

From To:	Sewage Treatment Tanks	Lined Evapo. Beds	Soil Absorption Systems or Unlined Evapo. Beds	Sewer Pipe with Watertight Joints
Private water wells, underground cisterns and pump suction pipes	50 +	150* +	150* +	20 +
Public water wells	50	150*	150	20
Water supply lines	10	10	10	9
Streams, ponds and lakes	50	75*	75	20
Sharp slopes, breaks	5	var.	50**	5
Foundations, structures and surface improvements	5	5	15	—
Property lines	10	10	10	—
Easement lines	1	1	5***	—
Soil absorption systems	5	5	20	—
Swimming pools	15	15	15	—

* When a leak detection system as described in Sec. 301.13.(c)(3)(A)(ii)(IV)(-a-) is used, the minimum required distance is 50 feet to existing private water wells, cisterns and pump suction pipes.

Var. These minimum required distances may be varied if an innovative lined system is required by the permitting authority to be designed by a Registered Professional Engineer or Registered Professional Sanitarian.

** The absorption system's bottom must be a minimum of 50 feet from any break or outcropping ledges, unless it is designed by a Registered Professional Engineer or a Registered Professional Sanitarian having hydrogeological data of the strata below the system's site. Greywater disposal areas may be installed to within 25 ft. of the slope face.

*** A drainage easement having sloped sides greater than 30% or grade breaks will require adherence to the 50 foot criteria indicated by **.

\+ This distance may be reduced to a minimum of 50 feet, for existing private water wells only, if the space between the existing private water well casing and the surrounding ground is filled with cement slurry that is pumped through a tube that extends to the required depth of sealing. This depth shall be at least two times the horizontal encroachment measurement but not more than the depth to the water producing strata. A three-foot-square by six-inch-thick concrete slab shall be poured around the casing.

materials must not be placed or planned for installation in any manner that will jeopardize the suitability of subsurface sewage disposal sites, unless a study by a registered professional engineer or a registered professional sanitarian is approved by the licensing authority.

J. Spacing with Other Utilities. Utility companies may have special restrictions that can be enforced onto on-site sewerage system installations. Safety of operations has been cited as a reason to maintain distance from buried electric and gas conduits. Safety to public health requires the separation of potable water piping from sanitary sewerage systems. Table 18.21.160(C) lists commonly used criteria, but each utility company serving the parcel should be consulted prior to installing the sewerage system even if no potential problems are evident.

K. Disposal System Selection. In designing a private sewage facility, several options concerning subsurface disposal are available. Table 18.21.160(D) has been prepared to aid in the selection of the proper system based on site evaluation, percolation rate, and lot size considerations. The table includes the systems generally recommended for subsurface disposal which are drainfields, absorption beds, and evapotranspiration beds. The purpose of Table 18.21.160(D) is to indicate the most feasible type of system to construct taking into consideration lot size, soil absorptive capacity, water conservation practices, and local climate.

1. System Selection. After determining the sizing of appropriate treatment tankage, the licensing authority shall confer with the applicant regarding the calculations to determine the bottom area required for trenches, an absorption bed system, and an evapotranspiration system. Generally, the system having the least number of square feet of bottom area will be the most economical. In most cases where adequate room is available, a trench system will be less costly.

2. Low Soil Permeability. In areas where soils have low permeability, it is possible to design a system which combines both soil absorption and evaportranspiration. Such systems are somewhat complicated and should be designed by a person trained in sewerage system design. (Ord. 9448 (part), 1988)

18.21.170 Percolation test procedures.

The percolation test is but one of many indicators of a site's future suitability to accept sewage for safe permanent disposal. Consequently, it should not be considered as the sole basis of designing an on-site sewerage system.

A. Location and Number of Tests. A minimum of three test holes will be required with the holes uniformly spaced over the proposed absorption field site.

1. Adjacent Groups. If the percolation rate results fall in adjacent groups, the absorption field may be designed using the test results from the hole with the slowest percolation rate or one additional hole may be dug, tested and all four results averaged. To properly average the results, each test result must be converted to minutes per inch, then added together. The sum is then divided by the number of tests. If tests in an area vary by more than twenty minutes per inch, variations in soil type are indicated and percolation rates should not be averaged.

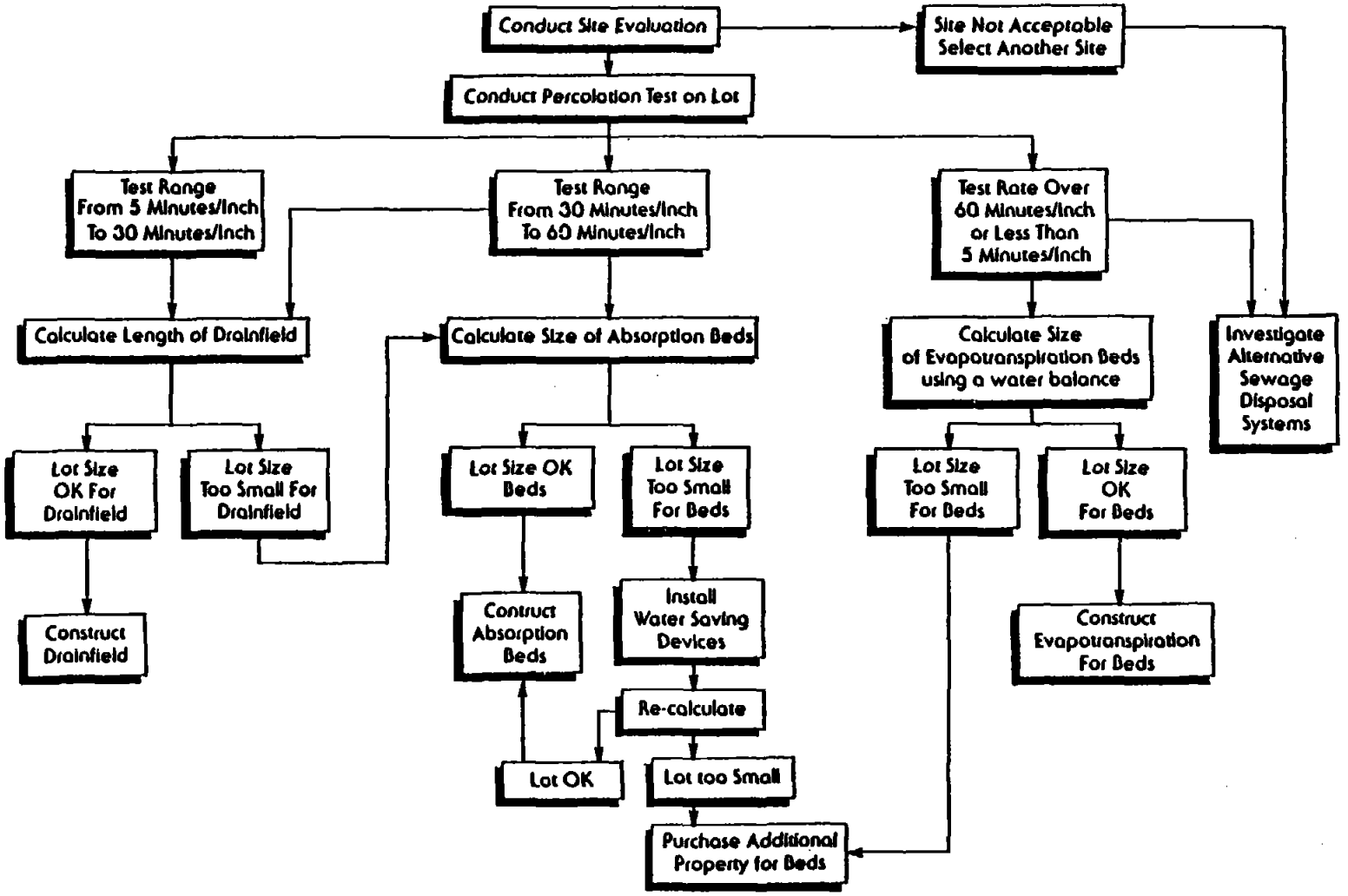
2. Nonadjacent Groups. If the percolation rate results fall in nonadjacent groups, the Absorption field may be designed using the test results from the hole with the lowest percolation rate or two additional holes may be dug, tested, and the results averaged.

3. Alternative Procedure. In lieu of the previously mentioned procedure, four holes may be dug and tested and the results averaged at the same time to reduce the amount of time required to conduct the test.

B. Type of Test Hole. Dig or bore a hole with a diameter of from six to twelve inches with vertical sides to the depth of the proposed absorption trench. The bottom of the hole must be at the same elevation as the proposed drainfield bottom.

C. Preparation of Test Holes. Carefully

Table 18.21.160(D)
FLOW SHEET FOR SELECTING PROPER SUBSURFACE DISPOSAL METHODS



scratch the bottom and sides of the hole with a knife blade or sharp-pointed instrument in order to remove any smeared soil surfaces and to provide a natural soil interface into which water may percolate. Remove all loose material from the hole and carefully place approximately one inch of coarse sand or fine gravel into the bottom of the hole to protect the bottom from scouring.

D. Saturation and Swelling of the Soil. It is important to distinguish between saturation and swelling. Saturation means that the void spaces between soil particles are full of water. This can be accomplished in a short period of time. Swelling is caused by intrusion of water into the individual soil particle. This is a slow process, especially in a clay-type soil, and is the reason for requiring a prolonged soaking period.

E. Filling of Test Holes. In the conduct of the test, carefully fill the hole with clear water to a minimum depth of twelve inches. In most soils, it is necessary to refill the hole by supplying a surplus reservoir of water manually or by means of an automatic siphon, to keep water in the hole until saturation occurs (approximately twenty-four hours). Determine the percolation rate twenty-four hours after water is first added to the hole. This procedure is to insure that the soil is given ample opportunity to swell and to approach the condition it will be in during the wettest season of the year. Thus, the test will give comparable results in the same soil, whether made in a dry or in a wet season. In sandy soils containing little or no clay, the swelling procedure is not essential and the test may be made as described in subsection G of this section after the water from one filling of the hole has completely seeped away.

F. Percolation Rate Measurement. With the exception of sandy soils, percolation rate measurements shall be made on the day following the procedure described in subsection E of this section. After the overnight swelling period, adjust the water depth to approximately twelve inches from the bottom. From a fixed reference point, measure the drop in water level over a thirty-minute period. This drop is used to calculate the percolation rate. If the rate is slower than thirty minutes per inch, continue with measuring the rate for an additional thirty minutes. The slower rate of the two consecutive one-half-hour tests should be used.

G. Percolation Rate Measurement (Sandy Soils). In sandy soils (or other soils in which the first six inches of water seeps away in less than thirty minutes, after the overnight swelling period), the hole should be filled to a depth of six inches and that depth maintained by adding water for thirty minutes. After thirty minutes, the drop in water level should be measured over an additional ten-minute period and the percolation rate calculated from this measurement. (Ord. 9448 (part), 1988)

Article V. Design Standards for On-site Treatment Methods

18.21.180 Design standards for residential sewerage systems.

A. House Sewer. The sewer from the house plumbing system to the septic tank shall be constructed of structurally sound pipe such as cast iron, ductile iron, or SDR 35 (or equivalent) plastic pipe with metallic locating tape, bedded in sand. Cast iron, ductile iron, Schedule 40 PVC, or high strength pipe should always be used under driveways. The pipe from the house to the septic tank shall have a minimum inside diameter of not less than four inches and be compatible with the house stub out pipe. The slope of the house sewer shall be no less than one-quarter-inch fall per foot of pipe. The stub out location shall be at the highest possible elevation with respect to the house foundation to avoid deep treatment systems. The line must be of watertight construction. A cleanout plug must be provided within three feet of the building and at ninety-degree turns in alignment, both horizontal and vertical, and at every seventy-five feet of

straight horizontal piping. Prospective installers and users of low flush commodes should consult with the manufacturers of these devices regarding their grade requirements. Too steep or too shallow slopes on pipes connecting the toilet and the treatment tank may require excessive maintenance. Piping from the treatment tankage to the disposal area must have at least two inches inside diameter, have at least a minimum fall of one-eighth inch per foot and be as sturdy as SDR 35 PVC piping. Metallic locating tape shall be used with the installation of all piping to and within the disposal area. This tape shall be readily detectable with a metal detector.

B. Septic Tank Capacity Based on Sewage Loading. A properly designed septic sewage tank shall be watertight. The settleable and suspended solids will undergo partial decomposition under anaerobic conditions. As a result of use, the septic tank will accumulate partially decomposed solids which must be removed periodically. As additional sewage is introduced into the tank, partially clarified effluent is discharged into the subsurface disposal field. The best method for estimating the tank's sewage loading is based upon the number of bedrooms in the house. Table 18.21.180 shall be used to determine the required minimum septic tank liquid capacity.

Table 18.21.180
Septic Tank Minimum Liquid Capacities

Number of Bedrooms	Septic Tank Capacity (Gallons)
Two or less	1,000
Three	1,000
Four	1,250
For each additional	250

Note: The inside liquid depth of the tank shall not be less than 30 inches.

See Table 18.21.230 for calculating the number of bedrooms based on dwelling living area.

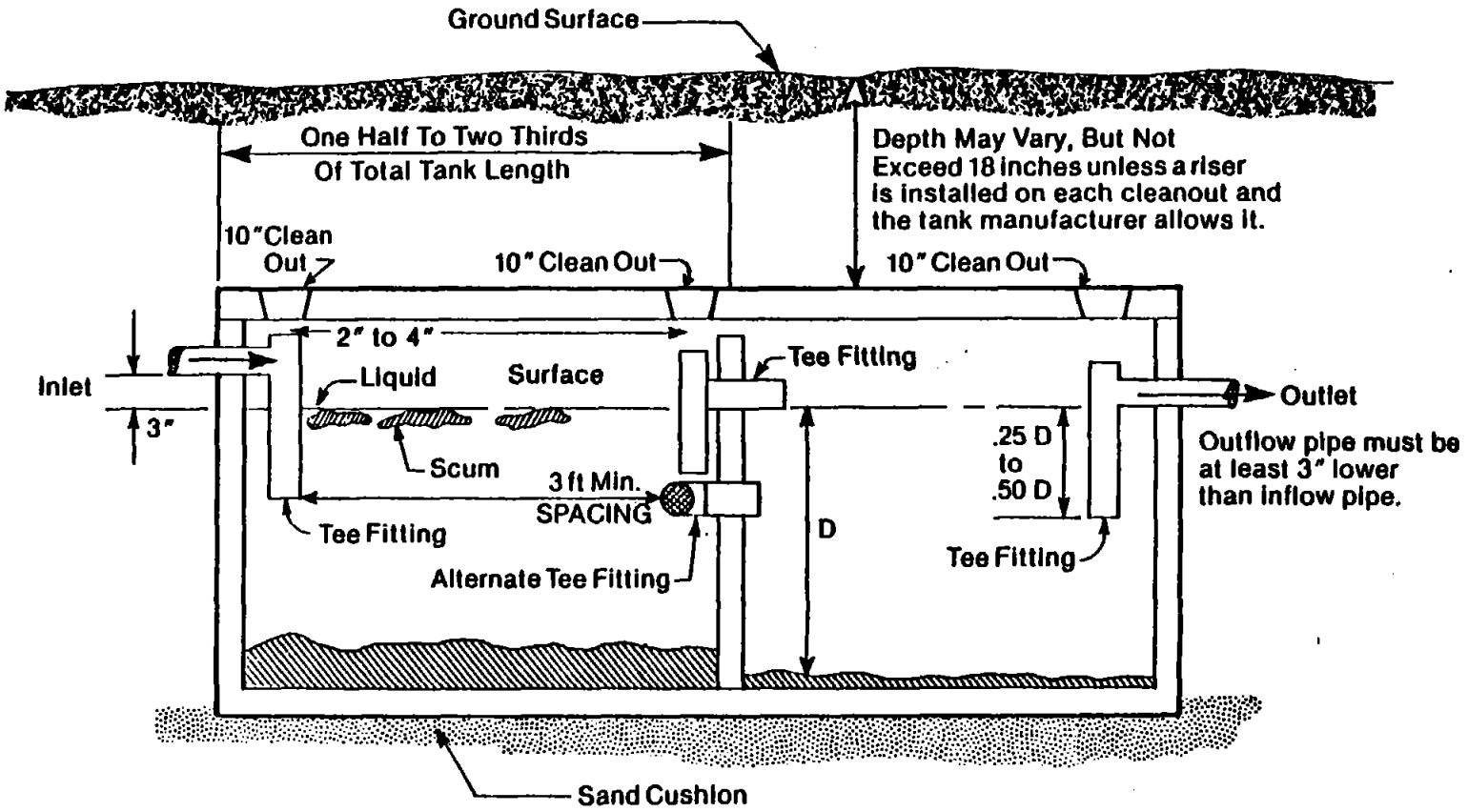
Consideration shall be given to increasing total tank capacity if extensive use of kitchen sink waste grinder/disposals is anticipated.

C. Inlet and Outlet Devices. To assure rapid drainage of house plumbing, the flow line of the inlet pipe shall be at least three inches higher than the operating tank liquid level which is determined by the flow line of the outlet pipe. Liquid penetration of the inlet device shall be at least six inches, but never greater than that of the outlet device. Liquid penetration of the outlet device shall be approximately one-fourth to one-half of the tank's liquid depth. T branches are required for inlet and outlet devices because they provide a means for venting the gases produced by the decomposition process from the tank and absorption system through the house plumbing. Otherwise, gases may escape from around the lid of the tank and cause an odor nuisance in the vicinity of the septic tank. T branches also offer ready access for required maintenance. To prevent the escape of floating solids from the tank to the subsurface disposal field and the possibility of inlet stoppages, the open spaces between the tops of the inlet and outlet devices and the underside of the tank cover shall not be greater than four inches, nor less than two inches (See Figure 18.21.180(A)). In order to provide a good watertight septic tank, the inlet and outlet T branches shall be installed in a permanent manner at the time the septic tank is constructed. Factory built tanks shall have the T branches grouted in place before delivery so that the only connections to the tank at the point of installation will be the influent and effluent lines. Manufacturers of prefabricated tanks shall be allowed to install watertight flanges into the tank walls, into which inlet and outlet stubs can be easily fitted by field installers, causing watertight connections.

D. Details of Septic Tank Design.

1. Two single compartment tanks in a series, or a two compartment tank, with approximately one-half to two-thirds of the total volume in the first compartment, will be required for acceptable solids removal. Tanks may be round, rectangular, or of a shape that allows the department's standards to be met. The second tank or compartment shall have inlet and outlet devices designed the same as for a single-com-

Figure 18.21.180(A)
TWO COMPARTMENT SEPTIC TANK



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partment tank, except that the elevation, or flow line, of the inlet devices in the second unit shall be the same as the outlet device in the first unit (See Figure 18.21.180(B)). A ten-inch minimum diameter or square port shall be provided to each flow line device for inspection, cleaning, and maintenance. Both the inlet and outlet devices shall be accessible for inspection and maintenance without having to enter the septic tank. For tanks not having more than twelve inches of earthen cover, the use of sectional slab covers will conveniently and safely provide the needed access. For tanks buried more than twelve inches, manholes with risers are required. The septic tank shall be of sturdy, watertight construction. Materials used may be steel-reinforced poured-in-place concrete, steel-reinforced pre-cast concrete, reinforced fiberglass, polyethylene, or other materials approved by the licensing authority. Metal septic tanks are prohibited because they are subject to corrosion. The septic tank shall be structurally designed to resist buckling from external hydraulic loading and exterior loading caused by earth fill, garden tractors, riding lawn mowers, or any expected maximum wheel weights. Tanks exhibiting obvious deflections, leaks, or defects that will impair treatament must not be used. Where concrete tanks are installed, sweating, or condensation at construction joints is acceptable.

2. In the case of poured-in-place concrete tanks, septic tank bottoms shall be at least six inches thick with 6 x 6 x 6 gauge welded steel mesh or number three reinforcing bars on six-inch centers, with such reinforcing materials being extended up into the wall area of the tank so that it will mesh with the reinforcing materials in the walls of the tank. The floor and walls must be constructed monolithically. Walls are to be a minimum of six inches thick.

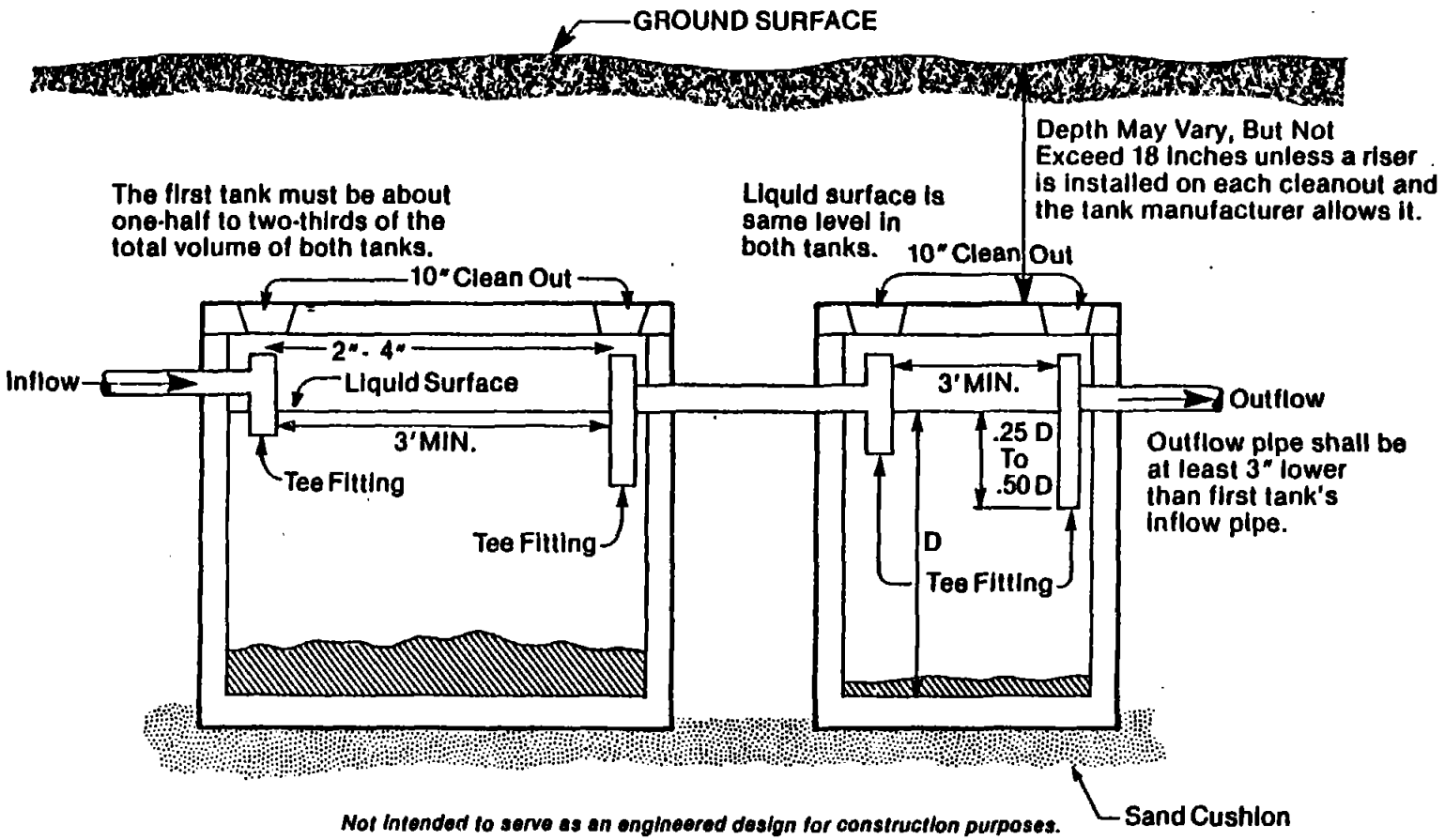
3. Septic tank tops reinforced with 6 x 6 x 6 gauge welded steel mesh or number three reinforcing bars on six-inch centers must be poured off-site rather than on the tank (not on top of a wooden frame over the tank) and must be moved onto the tank after hardening and then sealed to the tank with a permanent bonding material or rubber gasket having a one-half inch minimum thickness so as to form a seal between tank and top. To facilitate handling, tops may be poured in sections but must be sealed when in place. Tops must be a minimum of three inches thick.

4. Precast concrete, polyethylene, and prefabricated fiberglass tanks are subject to prior approval of the licensing authority, who should consult with the department regarding the uniquely differing materials, manufacturing methods, and designs used. All precast or prefabricated tanks shall be clearly marked, tagged, or stamped with the manufacturer's name, an exclusive serial number, and the capacity of such tanks near the level of the outlet in at least two positions so as to be clearly visible to the inspecting or permitting authority even after they have been placed in the ground. Listing of this information with the address of the installation shall be maintained by the licensing authority.

5. Septic tanks must be installed so as to provide at least twelve inches drop in elevation from the bottom of the outlet pipe to the bottom of the disposal area. A sand pad, sandy loam, or select material with a minimum thickness of four inches must be placed under all prefabricated tanks. All septic tank excavations must be backfilled with sand, pea gravel, select backfill, or loam not containing rocks greater than one inch in size. It is acceptable to mound sandy loam over a septic tank which is set high to maintain fall to the drainfield.

6. When treated sewage must be pumped to the disposal area, an effluent pump shall be placed in a watertight tank. A check valve shall be provided if the disposal area is upgrade and higher than the pump. The tank shall be pro-

Figure 18.21.180(B)
TWO SEPTIC TANKS
IN SERIES



Not intended to serve as an engineered design for construction purposes.

vided with a highwater alarm having a power circuit separate from the pump. The electrical connections shall be hard-wired, external to the pump chamber. Effluent pump tanks shall have a minimum capacity of five hundred gallons after the alarm is activated. (Ord. 9448 (part), 1988)

18.21.190 Design standards for institutional sewerage systems.

A. General Consideration of Use of Septic Tank Systems. Septic tanks may be used as a means of sewage treatment for nonresidential activities. However, experience indicates that the usefulness of the septic tank systems decreases as the size of the establishment served increases. A registered professional engineer shall be required to design all private sewage facilities serving institutions.

B. Sewage Loading. The total quantity of sewage applied per day to the septic tank provides the basis for the determination of its size. Table 18.21.190 will be of assistance in estimating the daily sewage flow per capita for a variety of living and activity situations. Organic loading of sewage from restaurants, hospitals, nursing homes, and other commercial establishments will require an increase in tank size.

C. Compartments to be Provided. Two compartments or two or more treatment units connected in series shall be utilized; shall be provided, the first created by a wall with a tee to permit liquid flow from the first compartment to the second one. The flow line of this intermediate fitting shall be at the elevation of the flow line of the outlet fitting of the second compartment. The fitting shall be three inches below the elevation of the flow line of the first compartment's inlet fitting. The capacity of the first compartment shall be one to two times the capacity of the second compartment. All tanks must be vented internally.

D. Selection of Septic Tank Capacity. The net volume or effective capacity below the flow line of a septic tank for flows up to two hundred fifty gallons per day shall be at least seven hundred fifty gallons. For flows between two hundred fifty and five thousand gallons per day, the capacity of the tank shall be equal to at least three days sewage flow. For daily flows over five thousand gallons per day, the determination of the necessity for a waste discharge permit must be obtained from the commission.

E. Pump Tank Usage. When treated sewage must be pumped to the disposal area, an effluent pump shall be placed in a watertight tank. A check valve shall be provided if the disposal area is upgrade and higher than the pump. The tank shall be provided with a highwater alarm having a power circuit separate from the pump. The electrical connections shall be hard-wired external to the pump chamber. Effluent pump tanks shall have a minimum capacity of one thousand gallons after the alarm is activated. For daily flows over five hundred gallons, a duplex pump configuration must be provided. (Ord. 9448 (part), 1988)

18.21.200 Design standards for aerobic sewerage plants.

A. Introduction. A number of small (up to one thousand five hundred gallons per day) aerobic wastewater disposal systems have been designed and marketed for the on-site treatment of sewage. The design standards in this section govern the installation and use of on-site aerobic sewerage plants for private residences, small businesses, and institutions that will not treat more than one thousand five hundred gallons per day. Sewerage plants designed to treat more than one thousand five hundred gallons per day must meet the design criteria for sewerage systems, published by the department and the commission.

B. Appropriate Usage. The installation and use of aerobic individual wastewater disposal units, other than septic systems, are acceptable to the licensing authority provided they meet the requirements of this section.

Table 18.21.190
Individual Usage Rates in Businesses/Institutions

This table may be used for estimating gallons of daily sewage flow per person to determine minimum tank capacity requirements, unless actual water usage data is available and has been carefully checked by the designer of the proposed system.

Type of Establishment	Gallons/Person/Day
Airports (per passenger)	5
Apartment houses	50
Boarding schools	50
Churches (per member)	5
Country clubs (per resident member)	100
Country clubs (per nonresident member present)	25
Day care centers (without kitchen)	15
Day care centers (with kitchen)	25
Drive-in theaters (per car space)	5
Factories (gallons per person per shift, exclusive of industrial wastes)	20
Hospitals	200
Hotels	80
Institutions other than hospitals	100
Laundries, self-service (gallons per wash, i.e., per customer)	50
Lounges (bar & tables)	10
Mobile homes	75
Motels	50
Movie theaters (per auditorium seat)	5
Office buildings*	15
Parks (without bathhouse)	5
Parks (with bathhouse)	15
Restaurants (24-hour full service)	70/seat/day
Restaurants (breakfast/lunch or lunch/dinner)	35/seat/day
Restaurants (fast food — paper plate service)	15/seat/day
Schools without cafeterias, gymnasiums or showers	15
Schools with cafeterias, but no gymnasiums or showers	20
Schools with cafeterias, gymnasiums and showers	25
Service stations (per vehicle served)	10
Stores (total per day per washroom)	400
Swimming pools and bathhouses	10
Townhouses (with clothes washer)	50
Travel trailer/RV parks	50
Vet clinics (per animal)	10
Work or construction camps (semi-permanent)	50
Youth camps (no showers or meals served)	15

*Note: Offices without food service or bathing facilities, with restrooms equipped with toilets requiring 1.5 gallon per flush or less, and automatic cutoff faucets .. 6

C. Effluent Disposal Practice. The effluent from an individual small aerobic wastewater disposal unit must be discharged into properly designed and constructed subsurface sewerage system. No discharges to or above the ground surface or into the waters of the state are authorized by the department. No local regulatory progam has been established to permit such practices.

D. Operation and Maintenance Responsibility. Companies distributing aerobic individual small waste disposal systems shall provide an inspection and repair service.

E. Emergency Operation. The principal structure or containing vessel of an individual small wastewater unit is designed to provide treatment to a predetermined amount of daily incoming sewage. In the event of more than one day's failure of mechanical or electrical devices, anaerobic conditions will prevail when aeration equipment is inoperable. The unit's owner shall be prepared for emergencies by contractual arrangement with the plant's seller, by stocking spare parts, by hiring a licensed sewage pumping and hauling company, or by preventing the generation of more sewage until the emergency is eliminated.

F. National Sanitation Foundation Criteria. Individual small aerobic wastewater disposal units shall have a National Sanitation Foundation Seal indicating the unit meets the Foundation's standard 40. Units not having a NSF approval rating must be approved through the procedure of Section 18.21.080.

G. Treatment Limitations. The prospective user should be aware that small aerobic treatment plants treat sewage differently than septic tanks. Aerobic treatment plants operate by mixing raw sewage together with air and masses of bacteria. Several kinds of bacteria consume the sewage and air, changing it to nitrogen, carbon dioxide and water, all of which are used by plant life. Treated clear effluent still contains microscopic bacteria and viruses that were in the raw sewage so it must be kept out of contact with the general public as much as possible. It is possible to disinfect treated sewage with chlorine, bromine, ultraviolet light, ozone, or other commercially available products. However, nothing will make aerobically treated sewage safe enough to use as fresh water. Disposal systems for aerobic plant effluent shall be the same as for septic tank effluents.

H. Siting Considerations. Most aerobic treatment plants sized for single home or small commercial shop use are usually only slightly larger than a septic tank but may not be installed as deeply. The organic loading, of commercial or institutional applications may require individual design considerations. Its inspection access is exposed to the surface, unlike a septic tank which is usually covered over with a layer of gravel or grass sod. The unit is generally one piece construction using concrete or fiberglass.

I. Solids Accumulations. Most aerobic treatment plants operate by applying air from an air compressor into the bottom of the tank that first accepts raw sewage. As the air bubbles rise to the surface the sewage mixes with a mass of brownish gray bacteria called activated sludge. Several baffles or compartments are required within the single unit so that several different activities can be done at the same time. These include mixing the air, sewage, and bacteria together, then allowing the bacteria to settle while the treated effluent is drained off the top. Solid materials that the bacteria cannot consume will accumulate in a sludge holding compartment along with grease, oil, and other undigested floating wastes. The sludge and floating wastes will have to be removed occasionally by a sludge hauling company. How often sludge has to be removed depends upon the type and amount of waste the owner applies to the system. (Ord. 9448 (part), 1988)

18.21.210 Design standards for grease traps.

A. Installation. Grease traps shall be used on kitchen wastelines from institutions, hotels, restaurants, schools with lunchrooms, and other places that may discharge large amounts of greases and oils to the sewer. However, wastes from garbage grinders must not be allowed to enter a grease trap. The trap shall be installed near the plumbing fixture that discharges greasy wastewater and should be easily accessible for cleaning. When maximum efficiency grease removal is necessary, a dual chambered trap that separates, then stores grease shall be utilized. If the dual chamber trap is installed as close as possible to the source of hot greasy wastes, the separated grease can be conveyed to the secondary chamber, where it accumulates, cools, and solidifies.

B. Sizing. Grease trap sizing will depend on the particulars of the application. Building code authorities and trap manufacturers should be consulted prior to sizing the unit. Grease interceptors shall be sized using Chapter 18.20 of this code. (Ord. 9448 (part), 1988)

Article VI. Design Standards for Effluent Disposal Systems

18.21.220 Site evaluation.

The effluent discharge from a septic tank or aerobic plant requires further handling to render it safe from a public health standpoint. A well-designed subsurface soil absorption system will allow these liquids to seep into the ground without creating a health hazard or nuisance. After the prospective builder has selected a suitable area and is assured that safe distances from wells, lakes, etc. can be maintained, the builder must determine, with the assistance of an experienced soils scientist, registered professional engineer or registered professional sanitarian whether soil formations in the selected area will allow a soil absorption system to work. When conventional soil absorption systems are used, there shall be no interference from groundwater. The groundwater table must be situated at least four feet below the bottom of the soil absorption system. The design standards for conventional soil absorption systems set forth in this chapter are based on the premise that impervious strata are at depths greater than four feet below the bottom of the absorption trench. Conventional soil absorption systems shall not be used if either impervious strata or groundwater exists at depths less than four feet from the trench or bed bottom, unless a detailed site evaluation is made and a design by a registered professional engineer or registered professional sanitarian is accepted by the licensing authority. (Ord. 9448 (part), 1988)

18.21.230 Soil absorption trench.

A soil absorption trench may be used if the proposed site provides sufficient room and is of suitable soil. An experienced soils scientist, registered professional engineer, or registered professional sanitarian should be consulted to determine if the site qualifies for trenches.

A. Absorption Trench Field for Level Terrain. Where the topography or ground slope is not too steep, a flat or level system of gravel-filled trenches or percolation beds is recommended. The use of a looped trench system will avoid dead ends and assure maximum effective utilization of all portions of the system. No individual trench shall exceed seventy-five feet in length.

1. The field bottom must be at least twelve inches lower than the flowline of the treatment tank. The capacity of any particular absorption system is determined by the total area of trench or bed bottom built into the system. The amount of this required minimum area will depend upon the expected sewage load, the average soil percolation rate, and the site's soil evaluation results. The soil percolation rate may be determined by performing a percolation test as described in Section 18.21.110 of this chapter. The trench dimensions for single family residen-

tial units may then be estimated from Table 18.21.230. For sewage flows of less than five thousand gallons per day from commercial or institutional establishments, A, the absorption trench bottom required, is determined by formula $A = 1.25\ Q/Ra$, where Ra, the allowable application rate, is found in Table 18.21.230 and Q is the daily flow.

2. All parts of the trench or bed bottom shall be at the same elevation. Trenches should be constructed as shallow as possible with a minimum depth of eighteen inches and a maximum depth of thirty-six inches. Deeper trenches should be used where snow may saturate the upper portion of the trench. For trench depths greater than twenty-four inches (except where snow exists), sand shall be used to fill the trench up to the top soil over as shown in Figure 18.21.230(A). The trench width shall not exceed thirty-six inches, as narrow trenches (twelve to eighteen inches) are recommended. Although trench length is based on bottom area only, sidewall area is important since much of the wastewater is absorbed through the sidewalls and is eventually evaportranspirated. Maximum allowable spacing between adjacent edges of parallel trenches is three trench widths.

3. Liquid from the sewerage unit is conducted to the absorption system via a watertight line similar to the house sewer. The liquid is distributed uniformly through the gravel-filled trenches by the use of three-inch to ten-inch perforated plastic pipe of any one size, or equivalent pipe materials. It is important that the distribution piping be laid reasonably level (four inches per one hundred feet maximum allowable grade) in the trenches, with a minimum of six inches gravel depth under the pipe. A total gravel depth of approximately twelve inches is required. The trench media must be clean graded gravel, broken vitrified brick, washed rock, crushed stone, or similar aggregate that is generally one uniform size (from 0.75 inches to 2.0 inches). Oyster shell, other types of shell, and soft limestone are not allowed for trench media because the cementitious properties of this type of material often result in early trench failure. The distribution pipe shall consist of plastic perforated pipe, four-inch corrugated polyethylene, or equivalent materials with an SDR ratio (ratio of pipe diameter to wall thickness) not numerically greater than forty-one. Jointed tile is not recommended for use because of the difficulty in maintaining joint spacing and keeping the line level. Covering of several layers of newspapers, a layer of butcher paper, or geotextile filter fabric material over the top of the gravel is required to prevent the sandy loam or sand backfill from invading the gravel until the backfill becomes stabilized. When only sandy loam is placed over gravel, only geotextile filter fabric shall be allowed. Tar paper or other impervious material shall not be used under any circumstance. The pipe selected for drainfield construction shall have sufficient strength to resist crushing from external loadings such as earth fill, garden tractors, riding mowers, and similar yard equipment. Bituminous fiberboard or paper pipe shall not be used anywhere in the sewerage system. Poor construction practices will cause serious damage to the soil absorption system. Prior to issuance of a permit, notice shall be given to the licensing authority of the types of piping proposed.

4. It is extremely important that care be taken to avoid sealing the surface of the bottom and sides of the absorption trenches through smearing. Trenches or beds shall not be excavated when the soil is sufficiently wet so as to smear or compact easily. All smeared or compacted surfaces occurring during construction shall be raked to a depth of one inch and loose material removed just before the gravel or other media is placed. The absorptive areas should not be walked on unnecessarily. The completed surface of the disposal area must not be paved, used for parking of vehicles, or covered with impermeable materials.

Table 18.21.230
Absorption Trench and Bed Sizing for Single-Family Residential Dwellings

Average Percolation Rate (Minutes/Inch)		Sewage Application Rate, R_a	Soil Texture (See Table 18.21.160(A), Soil Textural Classifications)	Minimum Bottom Area (Sq. Ft.) for a One or Two Bedroom House		Minimum Bottom Area for Each Additional Bedroom* (Sq. Ft./Bedroom)	
Minutes Per Inch	Inches Per Hour	Gallons Per Sq. Ft. Per Day		Trench	Bed	Trench	Bed
Less than 5	More than 12	Too great for consideration	Sand/gravel	Sections on alternative systems			
5—15	4—12	0.6	Sandy loam	380	750	200	250
15—30	2—4	0.5	Sandy clay	500	900	250	300
30—45	1.3—2	0.4	Silty clay	625	1125	300	400
45—60	1.0—1.3	0.3	Clay loam	800	1500	400	500
More than 60	Less than 1.0	Less than 0.3	Clay	See sections on alternative systems			

Minimum trench bottom area is calculated to include capacity for washing machine wastewater, organic material from garbage grinders, and infiltration of rainfall.

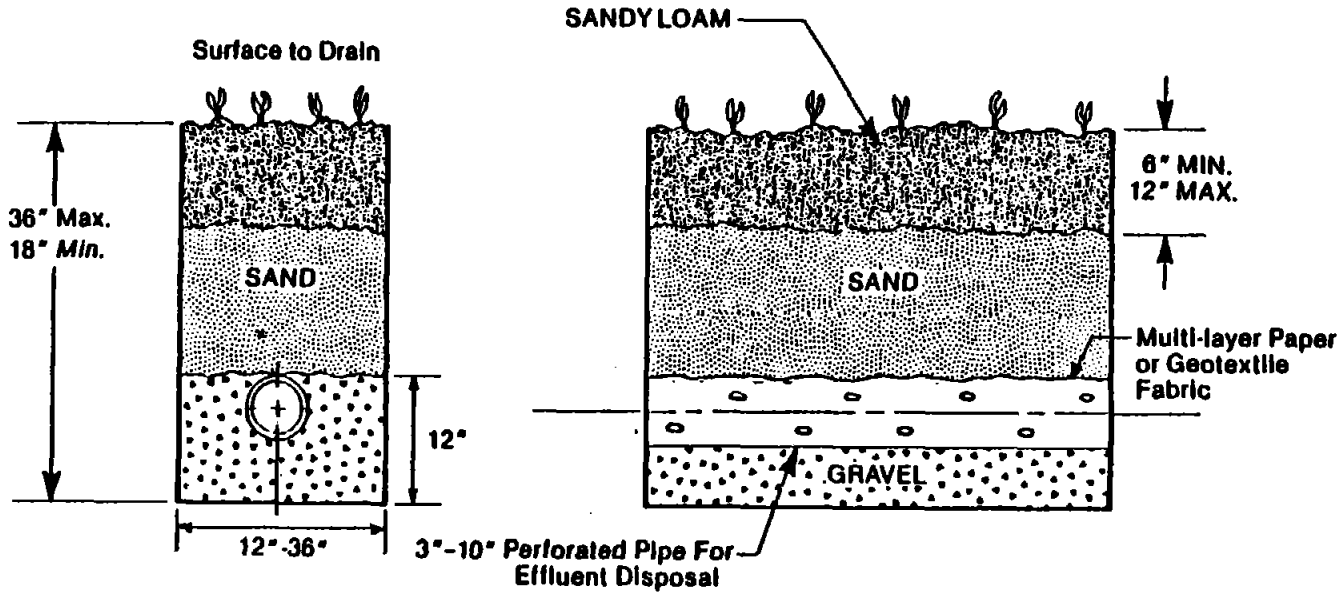
Required minimum spacing between parallel conventional absorption trenches is 3 trench widths.

*When dwellings consist of a large living area relative to the number of designated bedrooms, the following guidelines should be used to approximate the trench area:

Less than 1,500 sq. ft. — Use trench area for two-bedroom house. 1,500 sq. ft. to 1,900 sq. ft. — Use trench area for three-bedroom house. For each additional 800 sq. ft. — Add trench area equal to one bedroom.

This criteria is valid for normal water concumption by an average household occupancy and is not applicable to collective sewage system design.

Figure 18.21.230(A)
SOIL ABSORPTION TRENCH



Not intended to serve as an engineered design for construction purposes.

B. Absorption Trench Field for Irregular Terrain. Where the topography or ground slope is too steep for feasible construction of a closed-looped trench system, the following alternate layout may be used. There shall be a minimum sixteen-inch drop from the bottom of the outlet pipe to the bottom of the first trench when trenches are installed in this configuration.

1. A single level trench, constructed like the closed-looped trench, is built along a contour. The overflow from this trench is conducted via a watertight pipe to the next lower level where a second trench can be built along a contour similar to the upper trench. The pattern can be repeated until the required minimum trench bottom area has been provided. It is required that no individual trench exceed seventy-five feet in length. This technique is graphically illustrated in Figure 18.21.230(B). Other details of trench construction described in subsection (A)(1) of this section, and shown in Figure 18.21.230(A), should be followed. The crossover trench must be as shallow as possible to prevent effluent from draining from upper to lower levels through disturbed soil.

2. Table 18.21.160(C) should be reviewed if the irregular terrain has sharp slopes and breaks. (Ord. 9448 (part), 1988)

18.21.240 Soil absorption beds.

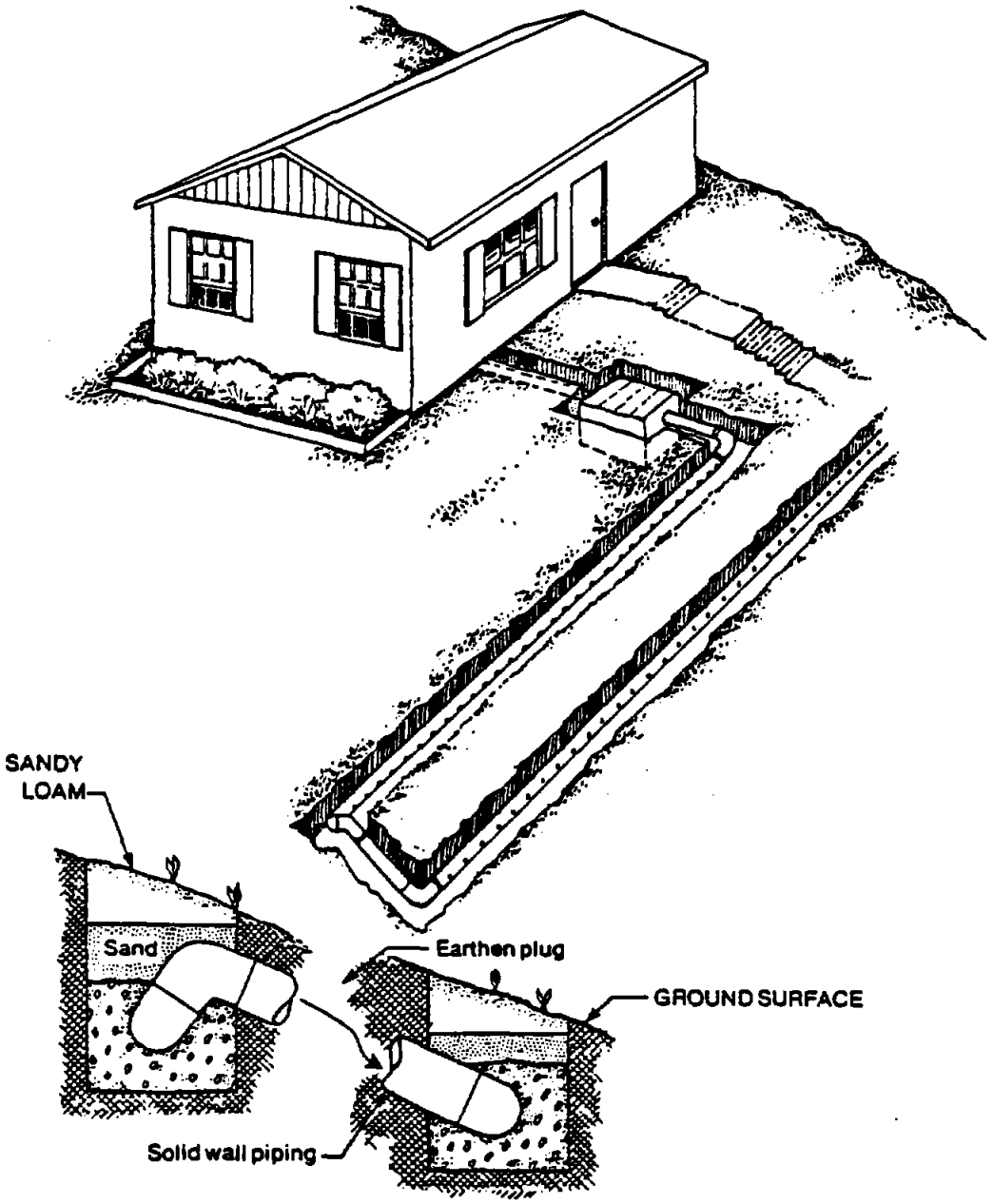
A. In addition to the trench-type absorption field, two or three absorption beds of reasonably equivalent areas, separated by at least four feet and using water tight flow diversion valving, (See Figure 18.21.240), may be used in areas where the combination of soil percolation and lot size precludes the use of a trench-type system with minimum spacing between trenches. While absorption beds require more bottom area than trenches, they tend to be more compact.

B. The bed shall be constructed with its depth ranging from twenty-four inches to thirty-six inches. It shall be kept as shallow as possible to promote aerobic bacterial action in the soil. The bottom of the bed must be level to within plus or minus one inch for uniform wastewater distribution. Fill dirt or top soil shall not be placed on the bed bottom for any reason. Media (gravel, crushed stone, etc.) that is generally one uniform size from 0.75 to two inches shall be placed on the bed bottom followed by two or more distribution pipes spaced six to twelve feet apart and three feet from the edge of the bed. The amount of gravel and spacing between the pipes is dependent on the size of the pipe used. The distribution pipe is then surrounded with additional gravel to the top of the pipe. The pipe must be one size, from three to ten inches in diameter. The total depth of the gravel in the bed is twelve inches. The gravel shall then be covered with filtering material, such as several layers of newspaper, a layer of butcher paper, or geotextile filter fabric, to prevent the final soil layer from invading the gravel and reducing porosity. The next soil layer shall consist of sand, sandy loam, or a mixture of the two.

C. Wicks. In order to provide continuous capillary action in the sand, wicks shall be incorporated in the rock media. Wicks are simply sand structures which penetrate through the rock media to the bottom of the bed (See Figure 18.21.240). The total wick area shall be ten to fifteen percent of the bed surface area and shall be uniformly spaced throughout the bed. Wicks may also be constructed by simply grading furrows in the rock media in between the distribution pipe. The total amount of rock media may be reduced by filling the initial twelve inches of the bed with coarse sand (2.0 mm) and placing rock media only around the top, bottom, and sides of the distribution pipe to form an eighteen-inch enclosure.

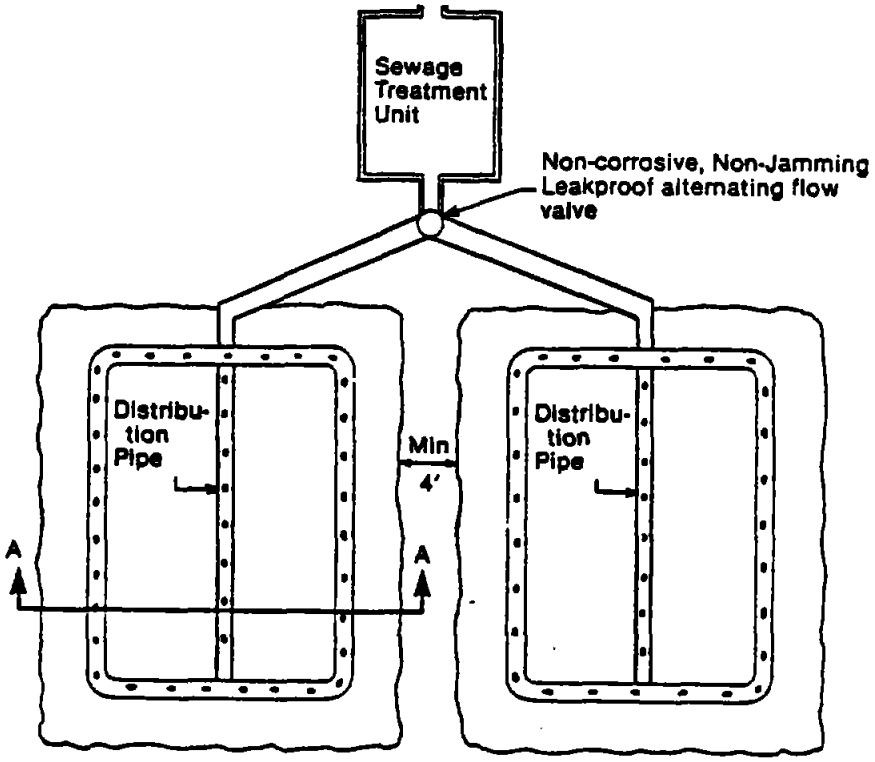
D. Capillary Medium. If clay, rock, or other semi-impervious material is excavated from the bed site, it must be removed and under no circumstances be used as backfill in the bed. Sand or sandy loam will provide a capillary medium to help eliminate some of the wastewater through

Figure 18.21.230(B)
SEPTIC TANK SYSTEM FOR
SLOPING GROUND
(without sharp slopes or grade breaks)

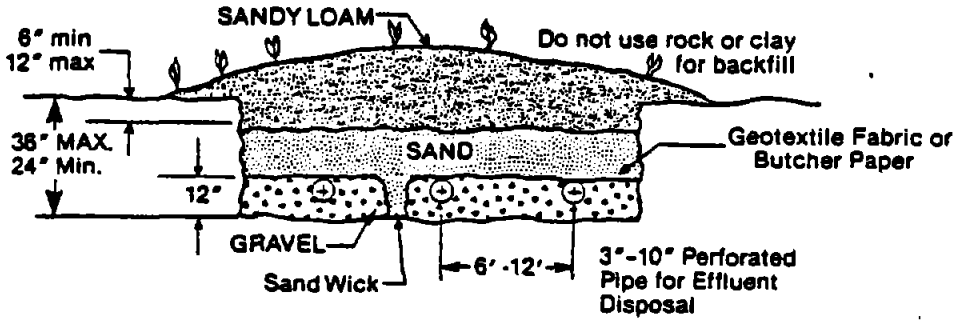


The septic tank and perforated piping shall be installed level while compacted earthen plugs shall separate the solid wall piping from the perforated piping and gravel.

Figure 18.21.240
SOIL ABSORPTION BED DETAILS



Plan View Of Dual Bed System



Section A-A

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evapotranspiration. The bed shall be filled to within six inches from the top with sand or sandy loam and mounded with sandy loam so that the center of the bed is approximately four inches above normal ground elevation. This will provide drainage away from the absorption bed. When this system is used, the total absorption bed area must be calculated using the following formulas:

For Dwellings:

$$A = \frac{150\,(1 + B)}{Ra}$$

Where:

A = The total absorption bed area required for two beds.

B = The total number of bedrooms in the dwelling.

Ra = Sewage application rate for absorption trenches expressed as gallons per square foot of bed bottom, per day based on percolation rate.

(See Table 18.21.230)

For non-single family residential situations:

$$A = \frac{2Q}{Ra}$$

Where:

Q = The total daily wastewater discharge in gallons from that situation.

(Ord. 9448 (part), 1988)

18.21.250 Evapotranspiration beds.

A. General. Evapotranspiration bed systems may be used in locations where soil conditions are not suitable for any type of soil absorption system. For very porous soils, solutioned limestone, fractured bedrock, and situations that would allow excessively rapid migration of sewage toward groundwater, lined evapotranspiration beds must be designed and certified by a registered professional engineer or registered professional sanitarian. The beds must be located outside the flood-prone area and not within areas subject to inundation or erosion by flood waters or rainfall runoff. An applicant for a permit to install a sewerage system shall consult with the local floodplain ordinances administrator, county engineer, State Highways and Public Transportation Department, nearest river authority, Farmers Home Administration, Federal Emergency Management Agency, and any other officials who may have information regarding the potential for flooding at the site of the evapotranspiration beds.

B. Construction Features. The following factors must be considered in the design of evapotranspiration beds: annual mean rainfall and wettest month of the year, annual mean evaporation rate and monthly minimal rate, growing season variations, native grasses and shrubs available for cover, absorptive capacity of the soil surrounding an unlined bed, and site conditions, including varying sunlight and air movement.

1. Evapotranspiration beds are constructed in impervious soil or soil with very high absorptive capacity. When the soils have a very high percolation rate, less than five minutes per inch, impervious liners must be constructed to guard against the possibility of wastewater discharging through the soil (fissured rock or gravel) and contaminating streams, lakes, or shallow groundwater. Impervious liners may consist of reinforced concrete, twenty mil minimum single layer thickness plastic, or rubber liners. All must be repairable in the field. Liners are not required in slowly permeable soils (having permeability of less than ten centimeters per second) and should not be used since some of the wastewater may be absorbed into the soil and will help to reduce the overall evapotranspiration load. An evapotranspiration system shall be designed using the following parameters:

a. Beds may be designed in any configuration,

but the total number of square feet of bed area must be determined by the formulas in subsection C of this section.

b. At least two beds must be constructed with valving arranged to allow the effluent from a sewerage unit to alternate between each bed. When one bed becomes saturated (top of bed remains moist) the valving must be operated to allow effluent to flow into the alternate underloaded bedding. In order to determine the water level in the beds during use, an inspection port shall be installed in each bed. Inspection ports shall be designed to prohibit access to the bed bottom by insects, small animals, and unauthorized persons.

c. The beds shall be constructed as shallow as possible with a depth ranging from eighteen inches to a maximum of thirty-six inches. This is necessary to keep the beds aerobic and prevent clogging. Treatment tankage should be installed as high as practical to permit shallow bed construction.

d. Evapotranspiration Bed. Its design features, as illustrated in Figure 18.21.250(A), are as follows:

i. All piping must be three to four inches in diameter. All perforated collection lines of an evapotranspiration bed monitor system must have a minimum crush strength of one thousand five hundred pounds per linear foot. The standpipe and sample sump must be of Schedule 40 polyvinylchloride or stronger. All connections shall be glued or rubber gasketed joints with the exception of the intruder resistant standpipe cap located at finished topsoil grade. Perforations in the collection lines must face downward, with the two rows of perforations equally offset perpendicular to the ground.

ii. The end(s) of the perforated collection line(s) shall extend to within two feet of both opposite ends of the bed, measured at the bed bottom.

iii. An evapotranspiration bed which is twenty feet wide or less shall have a minimum of one collection line which must be located centrally, down the length of the bed. An evapotranspiration bed which is greater than twenty feet but equal to or less than forty feet in width, shall have a minimum of two collection lines. These lines must be equally spaced (within approximately one foot) from the edge of the bed to pipe, and from pipe to pipe, installed parallel down the length of the bed. The two collection lines must be jointed by a perforated header line. As indicated in item (ii) of this subparagraph (B)(1)(c), the header line shall be within two feet, and parallel, to the edge of the bed measured at the bed bottom.

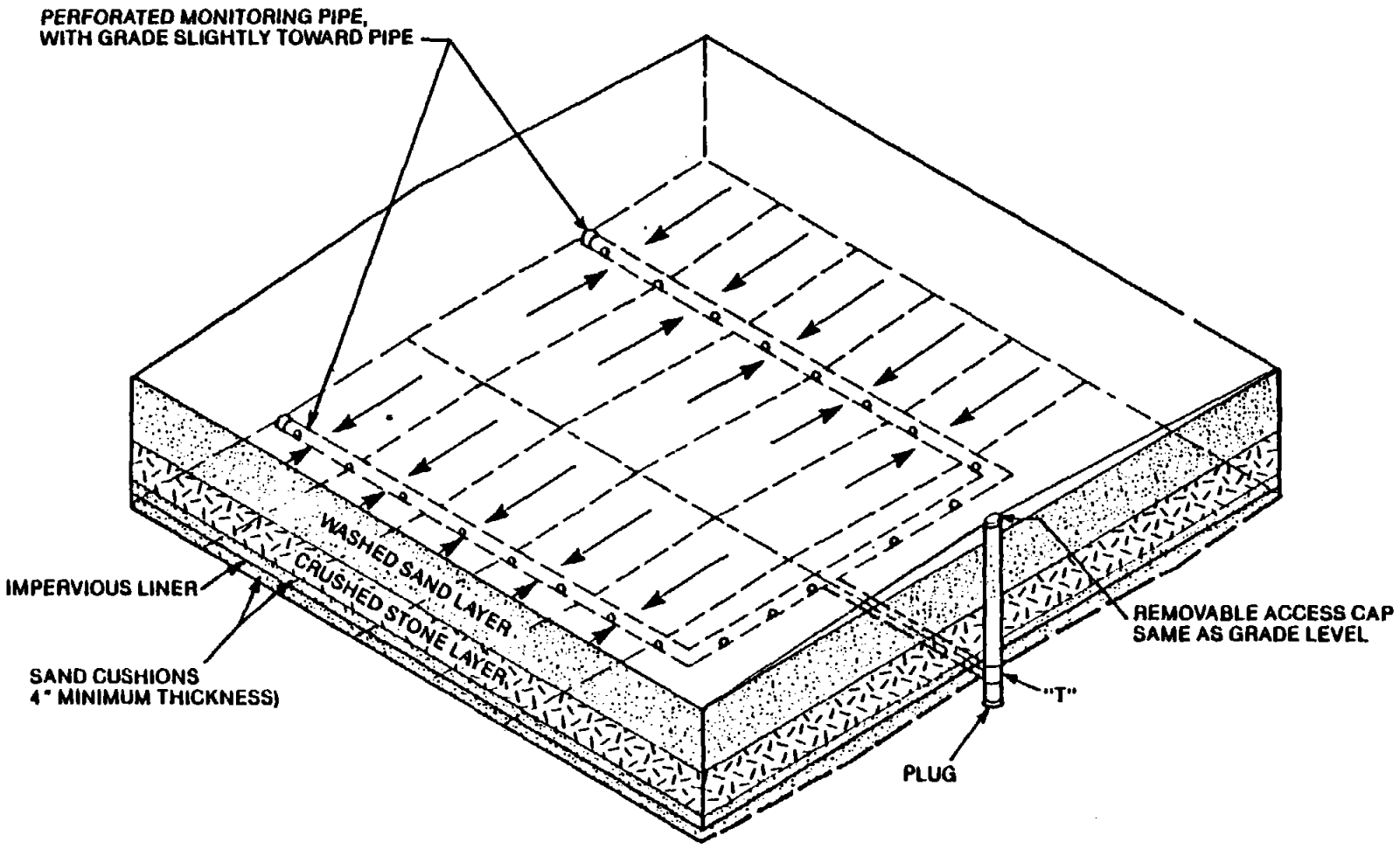
4. The collection line system must maintain a minimum fall of one-sixteenth inch per foot toward the standpipe/sump assembly.

5. The collection line(s) shall tee into a solid wall sandpipe which must have a sampling sump below the bottom of the tee. This sump shall be eight to twelve inches in depth, measured from the bottom of the tee. A cap or plug must be glued to the bottom of the sump to provide a watertight connection. The top of the standpipe shall be flush with the finished grade of topsoil, and shall be covered with an intruder-resistant, removable access cap. A minimum three inch wide by three inch deep dry moat shall surround the standpipe cap to facilitate ease of cap removal and replacement.

6. The pit bottom on which the collection line(s) shall be placed must be an impermeable surface, graded to provide a minimum fall of one-eighth inch per foot toward the collection line from either side. This will result in an impermeable shallow vee trench for the collection line to rest in.

7. The collection line(s) shall be located within the sand cushion required under lined beds. The minimum four inch sand cushion depth will increase as it follows the grade fall of the pit bottom toward the collection line. The backfill material around the standpipe should consist of sand or sandy loam.

Figure 18.21.250(A)
LEAK MONITOR SYSTEM



Not intended to serve as an engineered design for construction purposes.

8. Rock media that is generally one uniform size from 0.75 to two inches shall be placed on the bed bottom to a depth of twelve inches or less depending on the overall bed depth, after the liner and sand cushion are placed over the monitor system.

9. The top of the distribution pipe must be flush with the rock media and adequate to provide for uniform distribution of effluent. A twelve-foot maximum separation between pipes and no less than three feet separation between bed walls and the pipe is permissible. The bed bottom and the pipe must be level.

10. A water permeable sand barrier (butcher paper, newspaper, or geotextile filter fabric) is then placed over the rock. Sand is then added to fill the bed to within two inches from the top.

11. In order to provide continuous capillary action in the sand, wicks shall be incorporated in the rock media. Wicks are simply sand structures which penetrate through the rock media to the bottom of the bed (See Figure 18.21.250(B)). The total wick area shall be ten to fifteen percent of the bed surface area and shall be uniformly spaced throughout the bed. Wicks may also be constructed by simply grading furrows in the rock media in between the distribution pipe. In areas of the state where rock media is difficult to obtain, the total amount of rock may be reduced by filling the initial twelve inches of the bed with coarse sand (two millimeters) and placing rock media only around the top, bottom, and sides of the distribution pipe to form an eighteen-inch enclosure, as indicated in Figure 18.21.250(B).

12. After the sand is in place, the final two inches of bed volume are filled with sandy loam and mounded with a downward slope of two to four percent.

13. Final bed construction consists of covering the surface of the bed with vegetation having good transpiration properties and providing for the most stormwater diversion that is practical.

C. Bed Sizing. The bed area may be approximated by using the following formulas:

$$A = \frac{31{,}000\,(1 + B)}{EA - 1/2\ RFRA}$$

Where:

A = Total area of both beds (to find one bed area divide A by 2)

B = Total number of bedrooms (B = 2 for minimum residence)

EA = Mean evaporation rate in inches per year (See Table 18.21.250)

RFRA = Mean rainfall rate in inches per year (See Table 18.21.250)

For non-single family residential situations:

$$A = \frac{310\,Q}{EA - 1/2\ RFRA}$$

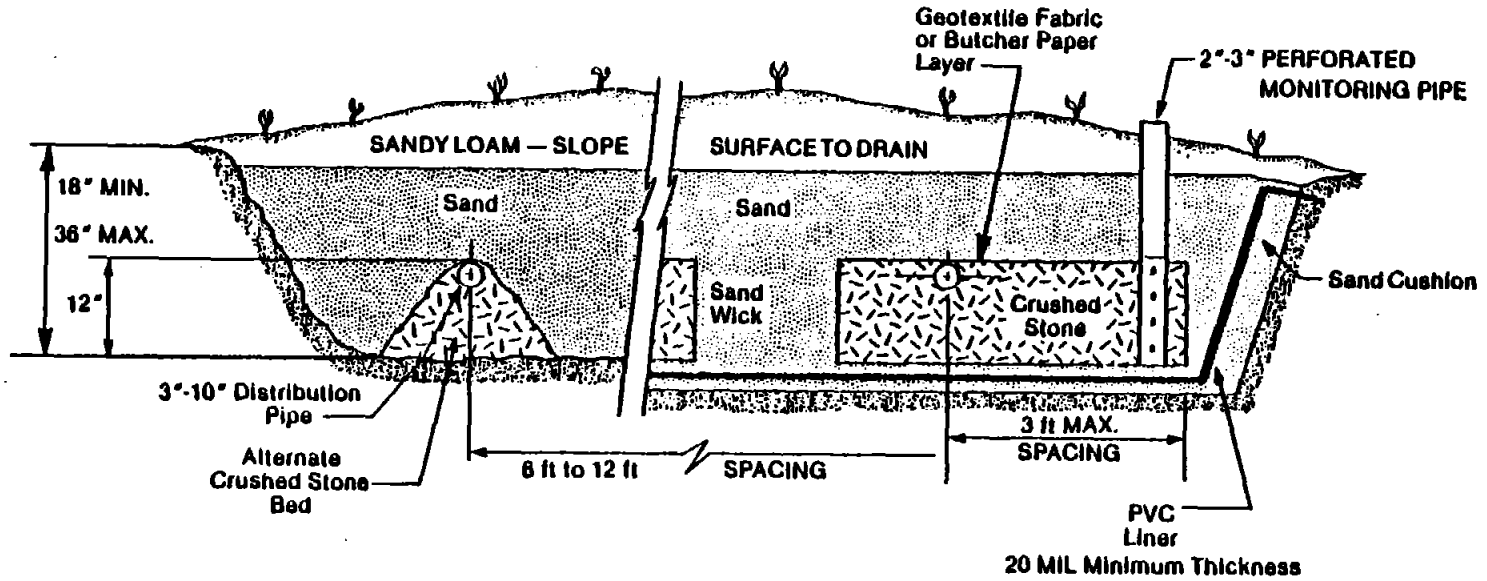
Where:

Q = Average daily flow into the system, expressed in gallons per day (see Table 18.21.190).

Evaporation and rainfall data for various areas of the state are listed in Table 18.21.250. Additional data may be found in "Report 192" and "Report LP192" published by the commission.

D. Plants and Grasses for Transpiration. The bed surface shall be covered with vegetation designed to take maximum advantage of transpiration, depending on the season and site's location. Evergreen bushes having shallow root systems can be planted in the bed to assist in water uptake. If grasses are used which have dormant periods, steps shall be taken to provide appropriate vegetation on the beds during these periods. Overseeding with winter grasses is commonly used to provide year-round transpiration. (Ord. 9448 (part), 1988)

Figure 18.21.250(B)
EVAPOTRANSPIRATION BED
(Cross Section)



NOTES:
1. Where a liner is used over rock or other material that may damage liner, the liner shall be laid on a 4" protective sand cushion, and covered by a similar cushion.
2. The crushed stone or gravel bed shall be made of ¾" to 2" size hard stone.
3. Sand columns, formed by a permeable material, shall extend completely through the crushed stone or gravel bed. Total column area shall be 10 to 15% of the bed area.
4. The surface shall be mounded or sloped to drain storm water.
5. The above drawing is for illustrative purposes; final construction design shall be site specific.

Not intended to serve as an engineered design for construction purposes.

Table 18.21.250
Mean Pan Evaporation and Rainfall

Station	E_A Mean Evaporation Rate (Inches/Year)	RFR_A Mean Rainfall (Inches/Year)
Abilene	75.0*	23.8**
Amarillo	87.9	20.28
Austin	70.0	32.49
Beaumont	47.8	55.07
Brownsville	56.0	25.13
Canyon Lake	80.8	33.19
Corpus Christi	67.0*	32.0**
Daingerfield	74.2	46.12
Dallas	85.0	35.94
El Paso	106.5	7.77
Fort Stockton	105.6	11.85
Houston	48.7	48.19
Lake Somerville	71.7	37.45
Laredo	87.0*	21.0**
Lubbock	88.7	18.41
Lufkin	51.0*	43.0**
Midland-Odessa	85.0*	13.0**
San Antonio	70.0*	30.0**
San Angelo	84.0*	19.0**
Temple	68.2	34.00
Tyler	55.0*	42.0**
Uvalde	72.0*	25.0**
Wichita Falls	73.0*	27.0**

*Interpolated from map, p. 66 "Climatic Atlas of Texas"
**Interpolated from map, p. 18 "Climatic Atlas of Texas"

18.21.260 Pressure dosing systems.

A. Description. A basic pressure dosing system must consist of an approved sewerage system, an effluent holding tank, an easily serviced screened intake electric pump which is activated by a float or programmed start/stop switch, a solid wall force main, and perforated distribution piping which is installed within the absorption area. The effluent pump must be capable of an operating range that will assure that effluent is delivered to the most distant point of the perforated piping network, yet not be excessive to the point that blow-outs occur in shallow systems. The programmed start/stop switch should allow the pump to operate at least three times during the twenty-four-hour day. A high water alarm, on an electric circuit separate from the pump, must be provided. After the alarm activates, the effluent holding tank shall have remaining capacity of five hundred gallons for residences and one thousand gallons for businesses and institutions. The number of perforations per length of pipe and the number of pipe lengths used per absorption area must be adequate to assure uniform liquid distribution over the entire bed area.

B. Application. Pressure dosing is an appropriate method of conveying effluent from a treatment site that is at a lower elevation than the disposal site. It is also appropriate where seasonal high water tables exist or where the soil mantle thickness is from two to four feet to solid rock. In these situations the system must be oversized substantially to promote the effect of evapotranspiration. Commercial establishments may need to use continuously staged pressure dosing if their flow rates vary greatly during their business hours. Pressure dosing systems shall be designed by a registered professional engineer. (Ord. 9448 (part), 1988)

18.21.270 Mound systems.

A. Physical Description. A mound system is comprised of a layering of sand fill, gravel, perforated pipe, and top soil. The layering begins in a two-to-three inch excavated area of natural ground and develops above the ground line approximately three feet. For greatest efficiency, its shape is rectangular. The small diameter perforated piping must be pressure-fed, as pressure systems have greater control over application rates.

B. Application. The purpose of this type of construction is to overcome adverse conditions at the disposal site such as a high groundwater table, shallow soil, impermeable soils, and high potential for flooding, for example. In general, the mound is constructed of a high quality soil which is brought in from another area. Since there is a potential for leakage from this type of system whch could result in the surfacing of sewage around its perimeter, it is not recommended for use except as a last resort. It may be used in an effort to improve the operation of a malfunctioning disposal system. Applications of effluent to a mound system depend upon the selection of fill materials used, the absorption rate of the natural ground, and depth to the shallow groundwater table. Mound systems shall be designed by a registered professional engineer. (Ord. 9448 (part), 1988)

18.21.280 Residential collective systems.

Collective private sewage facilities for residential properties shall meet the following additional requirements. Collective private sewage facilities shall be only approved for condominiums, planned unit developments, or any other entity legally authorized to assess and collect fees for the operation and maintenance of this collective disposal system, and individual or collective treatment systems. The right of the entity to assess and collect such fees shall be clearly defined to the licensing authority and in the lot owners agreement or other legal document issued by such entity to the lot owner. Proposed collective private sewage facilities shall be located above the one-hundred-year water surface elevation. (Ord. 9448 (part), 1988)

18.21.290 Gravelless drainfield piping.

A. Appropriateness. Gravelless pipe may be used in place of conventional gravel-filled trench systems.

B. Physical Description. Gravelless pipe generally consists of eight-inch or ten-inch diameter corrugated polyethylene pipe having two rows of perforations located approximately one hundred twenty degrees apart along the pipe's bottom half. The pipe is enclosed in a layer of spunbonded nylon filter wrap. Pipe shall meet American Society for Testing and Materials, ASTM F-667 Standard Specifications, for large diameter corrugated high density polyethylene (ASTM D 1248) tubing. Perforations shall be one-half-inch diameter in ten-inch diameter pipe and three-eights-inch diameter in eight-inch diameter pipe. Perforations shall be arranged and spaced so that only one hole exists in each inner corrugation. The filter cloth must meet ASTM D 3776 and ASTM D 1682 specifications for weight and grab strength. Its burst strength and air permeability must meet ASTM D 3786 and ASTM D 737 specifications, respectively. Installations must be in accordance with the pipe manufacturer's instructions. However, the system installer is cautioned against surrounding the pipe with native soils having percolation rates slower than thirty minutes per inch or laden with very fine soil particles that might plug the filter wrap.

C. Design Parameters. The design of an absorption bed, absorption trench, or evapotranspiration disposal field utilizing this product shall be based upon the same parameters that are used in the design of more conventional systems. (Ord. 9448 (part), 1988)

18.21.300 Design standards for disposal alternatives/special applications.

A. Greywater Systems. Generally, blackwater and greywater are approximately forty to sixty percent of the total domestic sewage flow, respectively. Subsurface greywater systems may be utilized with disposal of blackwater through a split system only under the following conditions:

1. A greywater disposal system utilizing anything other than conventional sewage treatment and absorption beds or trenches shall be designed and certified by a registered professional engineer or registered professional sanitarian who can provide to the licensing authority evidence that the system complies with all appropriate state regulations and local governmental regulations.

2. If flow restricting showerheads and faucet aerators are utilized throughout, a ten-percent reduction in greywater disposal trench, absorption bed, or evapotranspiration bed size will be allowed when a residential greywater system is incorporated into the disposal system design. The maximum allowable reductions in field size are determined by the type of system and the extent of watersaving fixture usage.

B. Composting Toilets. The composting toilet unit must be listed with the NSF. The NSF seal on a particular unit indicates its ability to meet the requirements of the NSF Standard Number 41, relating to wastewater recycle/reuse and water conservation devices. The liquid waste from the composting toilet unit must be disposed of through an approved subsurface disposal system.

C. Sewage Recycling Systems. For small on-site applications, sewage recycling systems are very limited in types and capability as follows:

1. On-site sewage recycling as flush water for urinals and commodes in commercial and institutional projects may be possible when advanced tertiary treatment processes are engineered into designs that meet or exceed NSF Standard Number 41 testing and certification requirements. An approvable design will be permitted only after the supplier and user of the recycle system enter into a post-installation inspection, maintenance, and repair agreement that satisfies the licensing authority.

2. Proposals to recycle highly refined sewage for use outside project buildings such as for sur-

face landscape irrigation will be subject to requirements indicated in Section 18.21.080 of this chapter (relating to innovative designs) and by the Texas Commission on Environmental Quality in 31 TAC Sections 317.1-317.13 (relating to design criteria for sewerage systems). (Ord. 16818 § 2 (part), 2008; Ord. 9448 (part), 1988)

Article VII. Prohibited Systems

18.21.310 Cesspools prohibited.

An individual commits an offense if he uses, operates, installs, maintains or services a cesspool. (Ord. 9448 (part), 1988)

18.21.320 Bore holes and injection wells prohibited.

An individual commits an offense if he installs, maintains, operates, services or uses a bore hole or injection well, unless the bore hole or injection well is part of a design licensed under Section 18.21.080. (Ord. 9448 (part), 1988)

18.21.330 Seepage pits.

An individual commits an offense if he uses, operates, maintains, or services a seepage pit. (Ord. 9448 (part), 1988)

18.21.340 Privies prohibited.

An individual commits an offense if he uses, operates, installs, or maintains a privy within one thousand three hundred twenty feet of any water well which is used for drinking water purposes. (Ord. 9448 (part), 1988)

Article VIII. Fees

18.21.350 Fees.

The following fees shall be charged for sewage facility permits and inspections and shall be paid to the city comptroller:

A. Single-family residence:

1. Permit to construct, forty dollars;
2. Inspection fee, fifty dollars;
3. State fee, ten dollars;
4. Economic hardship (twenty-five dollars plus state fee), thirty-five dollars (Applicants meeting federal poverty guidelines);
5. Follow-up inspection fee, thirty dollars;
6. License to operate (Section 18.21.070(C)), forty dollars.

B. Commercial:

1. Permit to construct, ninety dollars;
2. Operating license, one hundred dollars;
3. State fee, ten dollars.

(Ord. 9448 (part), 1988)

Article IX. Enforcement

18.21.360 Penalties.

A. Any individual, firm, corporation or agent who shall violate any provision of this chapter, or fail to comply therewith, or with any of the requirements thereof, or who shall erect, construct, alter, repair, or replace any private sewerage facility or has erected, constructed, altered, repaired, or replaced a private sewerage facility in violation of the proposed system as submitted and permitted thereunder, shall be guilty of a misdemeanor, and shall be subject to a fine not to exceed two thousand dollars.

B. Each day that a violation occurs constitutes a separate offense. (Ord. 9448 (part), 1988)

18.21.370 Nuisance declared.

A private sewage facility that is built, installed, used, operated or maintained in violation of this chapter is declared to be a public nuisance. All violations of this chapter are declared to be public nuisance. In addition to the penalties set forth in Section 18.21.360, this chapter may be enforced by injunction. (Ord. 9448 (part), 1988)

Chapter 18.24

GAS CODE*

Sections:

18.24.010 Short title.

18.24.020 Adoption.

18.24.030 Reserved.

18.24.040 Section 311 Accessible and acceptable location, added.

18.24.050 Section 401.2 Liquefied petroleum gas storage, amended.

18.24.060 Reserved.

18.24.070 Section 406.4 Test pressure measurement, amended.

18.24.080 Section 406.4.1. Test pressure, Low Pressure Gas Piping, added.

18.24.090 Section 406.4.2 Test duration, amended.

18.24.100 Section 406.4.3 Manufactured homes, added.

18.24.110 Section 417 Over 1-psi gas piping, added.

18.24.112 Appendix A—Sizing and Capacities of Gas Piping, is adopted in its entirety.

18.24.114 Appendix B—Sizing of venting systems serving appliances equipped with draft hoods, Category I appliance and appliance listed for use with Type B vents, is adopted in its entirety.

18.24.116 Appendix C—Exit terminals of mechanical draft and direct-vent venting systems, is adopted in its entirety.

18.24.118 Appendix D—Recommend procedure for safety inspection of an existing appliance installation, is adopted in its entirety.

18.24.120 Conflicting ordinances.

*Editor's note—Ord. No. 019528, § 7, adopted Aug 1, 2023, amended Ch. 18.24 in its entirety to read as set out herein. The former Ch. 18.24, §§ 18.24.010—18.24.120, pertained to similar subject matter and derived from Ord. No. 18514, § 1, adopted May 31, 2016.

18.24.010 Short title.

This chapter may be cited as the "Gas Code." (Ord. No. 019528, § 1, 8-1-2023)

18.24.020 Adoption.

The book entitled "International Fuel Gas Code," 2021 Edition, a copy of which authenticated by the city clerk is on file in the city clerk's office, is adopted as the Gas Code of the city, as fully as if copied at length in this chapter, but with the changes set forth in this chapter and Chapter 18.02, the Building and Administrative Code of the City of El Paso.
(Ord. No. 019528, § 1, 8-1-2023)

18.24.030 Reserved.

18.24.040 Section 311 Accessible and acceptable location, added.

International Fuel Gas Code, 2021 Edition, Section 311 Accessible and Acceptable Location, is hereby added to read as follows:

311 Accessible and Acceptable Location. A meter location, when required, shall be provided for the building or premises to be served. The location shall be such that the meter and connections are accessible in order that they may be read or changed. Space requirements, dimensions, and type of installation shall be acceptable to the gas company. Meter location will be determined by the utility company in conformance with their service franchise.
(Ord. No. 019528, § 1, 8-1-2023)

18.24.050 Section 401.2 Liquefied petroleum gas storage, amended.

International Fuel Gas Code, 2021 Edition, Section 401.2, Liquefied petroleum gas storage, is hereby amended to read as follows:

401.2 Liquefied petroleum gas. The storage system for liquefied petroleum gas shall be designed, installed and an operational permit obtained, in accordance with the Fire Code.

Exception: Liquefied petroleum gas system shall not be installed in Group R1, R2, R3 and R4 occupancies when a natural gas utility supply pipe is available within 1,000 feet of the buildings.
(Ord. No. 019528, § 1, 8-1-2023)

18.24.060 Reserved.

18.24.070 Section 406.4 Test pressure measurement, amended.

International Fuel Gas Code, 2021 Edition, Section 406.4 Test pressure measurement, is hereby amended to read as follows:

406.4 Test pressure measurement. Test pressure shall be measured with a manometer or with a pressure-measuring device designed and calibrated to read, record, or indicate a pressure loss caused by leakage during the pressure test period. The source of pressure shall be isolated before the pressure tests are made. Mechanical gauges used to measure test pressures shall have a range such that the highest end of the scale is not greater that two (2) times the test pressure. Tests requiring a pressure of 10 psi or less shall utilize a testing gauge having increments of 0.20 psi or less. Tests requiring a pressure greater than 10 psi but less than or equal to 100 psi shall utilize a testing gauge having increments of 1 psi or less. Tests requiring a pressure of greater than 60 psi shall utilize a testing gauge having increments of 2 psi or less.
(Ord. No. 019528, § 1, 8-1-2023)

18.24.080 Section 406.4.1. Test pressure, Low Pressure Gas Piping, added.

International Fuel Gas Code, 2021 Edition, Section 406.4.1 Test pressure, Low Pressure Gas Piping is hereby added to read as follows:

406.4.1.1 Test pressure. Low pressure gas piping shall withstand a pressure of at least 10 psi or 16 inches of mercury. Higher pressure gas piping shall withstand a pressure of at least 60 psi on a clock gauge with a printed record chart. For the purposes of this section, "low pressure" shall mean pressure equal to or less than 0.5 psi.
(Ord. No. 019528, § 1, 8-1-2023)

18.24.090 Section 406.4.2 Test duration, amended.

International Fuel Gas Code, 2021 Edition, Section 406.4.2 Test duration, is hereby amended to read as follows:

406.4.2 Test duration. Test duration shall be not less than 15 minutes for low pressure gas piping and not less than 4 hours for higher pressure gas piping.
(Ord. No. 019528, § 1, 8-1-2023)

18.24.100 Section 406.4.3 Manufactured homes, added.

International Fuel Gas Code, 2021 Edition, Section 406.4.3 Manufactured homes, is hereby added to read as follows:

406.4.3. Manufactured Homes. Appliance installations in manufactured housing meeting the requirements of the Texas Manufactured Housing Standards Act, or in industrialized housing or industrialized buildings meeting the requirements of the Texas Industrialized Housing and Building Act or bearing the Federal Compliance Plate (ANSI-A119.1), including the appliance connections and the fuel gas piping system, shall not be subject to the provisions of this Code except for the-test provisions of International Fuel Gas Code, Section 406.
(Ord. No. 019528, § 1, 8-1-2023)

18.24.110 Section 417 Over 1-psi gas piping, added.

International Fuel Gas Code, 2021 Edition, Section 417 Over 1-psi gas piping, is hereby added to read as follows:

417 Over 1-psi Gas Piping.

417.1 Scope and Responsibility. Under this section appear additional fundamental requirements for the installation of consumer gas piping system using over 1-psi gas pressure. Responsibility for observing these requirements shall rest with the installing agency.

417.2 Requirements. The requirements of the Gas Code are applicable to over 1-psi gas piping installations except as such requirements are mod-

ified in this chapter. Over 1-psi gas piping systems designed in accordance with this chapter and other requirements of this Code are intended for use where the building service regulator has been set to deliver gas at over 1-psi.

417.3 Over 1-PSI Piping System. Systems designed for over 1-psi gas pressure downstream of the meter shall adhere to all requirements of this Code, of the Gas Utility, and as follows:

1. Drawings and calculations, including site plan and gas piping diagrams shall be submitted to the Gas Utility for approval.

2. The gas pressure shall be regulated to ounces before entering any building or structure, unless otherwise approved by the Gas Utility.

3. All underground lines and above-ground lines within six (6) inches of the ground shall be of wrapped steel. Joints in underground lines and above-ground lines within six (6) inches of the ground shall be welded. Approved plastic pipe may be installed underground, outside buildings, without wrapping.

4. All above-ground lines installed more than six (6) inches above the ground inside buildings shall be of wrapped or bare steel and shall use only welded pipe joints.

5. Gas lines, located outside buildings, and more than 6 inches above ground and operating at up to 5-psi pressure may be installed with approved threaded joints.

(Ord. No. 019528, § 1, 8-1-2023)

18.24.112 Appendix A—Sizing and Capacities of Gas Piping, is adopted in its entirety.

(Ord. No. 019528, § 1, 8-1-2023)

18.24.114 Appendix B—Sizing of venting systems serving appliances equipped with draft hoods, Category I appliance and appliance listed for use with Type B vents, is adopted in its entirety.

(Ord. No. 019528, § 1, 8-1-2023)

18.24.116 Appendix C—Exit terminals of mechanical draft and direct-vent venting systems, is adopted in its entirety.

(Ord. No. 019528, § 1, 8-1-2023)

18.24.118 Appendix D—Recommend procedure for safety inspection of an existing appliance installation, is adopted in its entirety.

(Ord. No. 019528, § 1, 8-1-2023)

18.24.120 Conflicting ordinances.

All ordinances and parts of ordinances in conflict with the provisions of this chapter are hereby repealed.

(Ord. No. 019528, § 1, 8-1-2023)

Chapter 18.28

EXISTING BUILDING CODE*

Sections:

18.28.010 Short title.

18.28.020 Adoption.

18.28.030 Reserved.

18.28.040 Reserved.

18.28.050 Reserved.

18.28.060 Reserved.

18.28.070 Reserved.

18.28.080 Reserved.

18.28.090 Reserved.

18.28.100 Reserved.

18.28.110 Reserved.

18.28.120 Reserved.

18.28.130 Section 1012 Energy, added.

18.28.140 Section [902.3.]612 Compliance with the Vacant Premises/Building Code, added.

18.28.150 Section 701.1 Scope, amended.

18.28.160 Reserved.

18.28.170 Section 803.4.3 Fire sprinkler system supplemental installation requirements, added.

18.28.180 Section 804.2.6 Fire wall alternative, added.

18.28.190 Section 806.4.2 Kitchens, amended.

18.28.200 Reserved.

18.28.220 Appendix A, Guidelines for the Seismic Retrofit of Existing Buildings, adopted.

18.28.230 Appendix B Supplementary Accessibility Requirements for Existing Buildings and Facilities, adopted.

18.28.240 Appendix C Guidelines for the Wind Retrofit of Existing Buildings is hereby adopted.

18.28.250 Conflicting ordinances.

***Editor's note—**Ord. No. 019528, § 8, adopted Aug 1, 2023, amended Ch. 18.28 in its entirety to read as set out herein. The former Ch. 18.28, §§ 18.28.010—18.28.250, pertained to similar subject matter and derived from Ord. No. 18515, § 1, adopted May 31, 2016.

18.28.010 Short title.

This chapter may be cited as the "Existing Building Code."
(Ord. No. 019528, § 1, 8-1-2023)

18.28.020 Adoption.

The book entitled "International Existing Building Code" 2021 Edition, a copy of which authenticated by the city clerk is on file in the city clerk's office, is adopted as the Existing Building Code of the city, as fully as if copied at length in this chapter, but with the changes set forth in this chapter and Chapter 18.02, the Building and Administrative Code of the City of El Paso.
(Ord. No. 019528, § 1, 8-1-2023)

18.28.030 Reserved.

18.28.040 Reserved.

18.28.050 Reserved.

18.28.060 Reserved.

18.28.070 Reserved.

18.28.080 Reserved.

18.28.090 Reserved.

18.28.100 Reserved.

18.28.110 Reserved.

18.28.120 Reserved.

18.28.130 Section 1012 Energy, added.

International Existing Building Code, 2021 Edition, Section 1012 Energy, is hereby amended to add an exception to read as follows:

1012 Energy. Buildings forty years or older undergoing a change in occupancy that would

result in an increase in demand for either fossil fuel or electrical energy do not need to comply with the International Energy Conservation Code.
(Ord. No. 019528, § 1, 8-1-2023)

18.28.140 Section [902.3.]612 Compliance with the Vacant Premises/Building Code, added.

International Existing Building Code, 2021 Edition, Section 902.3.612 Compliance with the Vacant Premises/Building Code, is hereby added to read as follows:

902.3.612 Compliance with the Vacant Premises/Building Code. Where the character or use of an existing building or part of an existing building is identified as a vacant building/area in accordance with 18.40 of the El Paso City Code, commonly referred to as the Vacant Premises/Building Code, the building shall then comply with all of the applicable requirements of the Vacant Building Code.
(Ord. No. 019528, § 1, 8-1-2023)

18.28.150 Section 701.1 Scope, amended.

International Existing Building Code, 2021 Edition, Section 701 Scope, is hereby amended to add the following:

701.1 Scope. Level 1 alterations as described in Section 602, shall comply and include, the removal and replacement or the covering of existing materials, elements, equipment, or fixtures using new materials, elements, equipment, or fixtures that serve the same purpose, as well as alterations described in Level 2 where change of use does not affect occupant load. Level I alterations shall comply with the requirements of Chapter 7. Level 1 alterations to historic buildings shall comply with this chapter, except as modified in Chapter 12.
(Ord. No. 019528, § 1, 8-1-2023)

18.28.160 Reserved.

18.28.170 Section 803.4.3 Fire sprinkler system supplemental installation requirements, added.

International Existing Building Code, 2021 Edition, Section 803.4.3 Fire sprinkler system supplemental installation requirements, is hereby added to read as follows:

803.4.3 Fire sprinkler system supplemental installation requirements. Where the work area in a building is required to be provided with automatic sprinkler protection in accordance with the International Building Code, an approved water supply riser pipe and stub out shall be installed as a component of the automatic sprinkler system to allow for future distribution and interconnection of an automatic sprinkler system to other work areas above and below the present work area.

Exception: If the Fire Code official determines that it is technically infeasible to design and install an automatic sprinkler system, work areas shall be protected throughout all occupiable spaces by an automatic fire detection system that activates the occupant notification system in accordance with the International Building Code.
(Ord. No. 019528, § 1, 8-1-2023)

18.28.180 Section 804.2.6 Fire wall alternative, added.

International Existing Building Code, 2021 Edition, Section 804.2.6 Fire wall alternative, is hereby added to read as follows:

804.2.6 Fire wall alternative. In other than Groups H, F-1 and S-1, fire barriers and horizontal assemblies constructed in accordance with the International Building Code shall be permitted to be used in lieu of fire walls to subdivide the building into separate buildings for the purpose of complying with the area limitations required for the new occupancy where all of the following conditions are met:

1. The buildings are protected throughout with an automatic sprinkler system in accordance with the International Fire Code.

2. The maximum allowable area between fire barriers, horizontal assemblies, or any combination thereof shall not exceed the maximum allowable area determined in accordance with Chapter 5 of the International Building Code without an increase allowed for an automatic sprinkler system in accordance with Section 506 of the International Building Code.

3. The fire-resistance rating of the fire barriers and horizontal assemblies shall not be less than that specified for fire walls in Table 706.4 of the International Building Code.

Exception: Where horizontal assemblies are used to limit the maximum allowable area, the required fire resistance rating of the horizontal assemblies shall be permitted to be reduced by 1 hour provided the height and number of stories increases allowed for an automatic sprinkler system by Section 504.2 of the International Building Code are not used for the buildings.
(Ord. No. 019528, § 1, 8-1-2023)

18.28.190 Section 806.4.2 Kitchens, amended.

International Existing Building Code, 2021 Edition, Section 806.4.2 Kitchens, is hereby amended to read as follows:

806.4.2 Kitchens. Kitchens shall have a minimum of three separate and remote duplex receptacle outlets.
(Ord. No. 019528, § 1, 8-1-2023)

18.28.200 Reserved.

18.28.220 Appendix A, Guidelines for the Seismic Retrofit of Existing Buildings, adopted.

International Existing Building Code, 2021 Edition, Appendix A, Guidelines for the Seismic Retrofit of Existing Buildings, is hereby adopted in its entirety.
(Ord. No. 019528, § 1, 8-1-2023)

18.28.230 Appendix B Supplementary Accessibility Requirements for Existing Buildings and Facilities, adopted.

International Existing Building Code, 2021 Edition, Appendix B Supplementary Accessibility Requirements for Existing Buildings and Facilities, is hereby adopted in its entirety.
(Ord. No. 019528, § 1, 8-1-2023)

18.28.240 Appendix C Guidelines for the Wind Retrofit of Existing Buildings is hereby adopted.

International Existing Building Code, 2021 Edition, Appendix C Guidelines for the Wind Retrofit of Existing Buildings is hereby adopted in its entirety.
(Ord. No. 019528, § 1, 8-1-2023)

18.28.250 Conflicting ordinances.

All ordinances and parts of ordinances in conflict with the provisions of this chapter are hereby repealed.
(Ord. No. 019528, § 1, 8-1-2023)

Chapter 18.30

INTERNATIONAL SWIMMING POOL AND SPA CODE*

Sections:

18.30.010 Short title.

18.30.020 Adoption.

18.30.030 Chapter 1, Scope and Administration.

18.30.040 Chapter 2, Definitions.

18.30.050 Chapter 3, General Compliance.

18.30.060 Chapter 4, Public Swimming Pools.

18.30.070 Chapter 5, Public Spas and Public Exercise Spas.

18.30.080 Chapter 6, Aquatic Recreation Facilities.

18.30.090 Chapter 7, On-ground Storable Residential Swimming Pools.

18.30.100 Chapter 8, Permanent In-Ground Residential Pools.

18.30.110 Chapter 9, Permanent Residential Spas and Permanent Residential Exercise Spas.

18.30.120 Chapter 10, Portable Residential Spas and Portable Residential Exercise Spas.

18.30.130 Chapter 11, Referenced Standards.

18.30.140 Conflicting Ordinances.

18.30.010 Short title.

This chapter may be cited as the "Pool and Spa Code."
(Ord. No. 019528, § 1, 8-1-2023)

18.30.020 Adoption.

The book entitled "International Swimming Pool and Spa Code, 2021 Edition, a copy of which authenticated by the City Clerk is on file in the City Clerk's Office, is adopted as the Pool and Spa Code of the City.
(Ord. No. 019528, § 1, 8-1-2023)

18.30.030 Chapter 1, Scope and Administration.

(Ord. No. 019528, § 1, 8-1-2023)

18.30.040 Chapter 2, Definitions.

(Ord. No. 019528, § 1, 8-1-2023)

18.30.050 Chapter 3, General Compliance.

International Swimming Pool and Spa Code, 2021 Edition, Section 306.10 Deck width, is hereby added to read as follows: **310.6 Deck width.** Residential pools and spas shall be provided with a three-foot-wide, slip resistant, perimeter deck surrounding at least sixty-five percent of the swimming pool or spa.
(Ord. No. 019528, § 1, 8-1-2023)

18.30.060 Chapter 4, Public Swimming Pools.

(Ord. No. 019528, § 1, 8-1-2023)

18.30.070 Chapter 5, Public Spas and Public Exercise Spas.

(Ord. No. 019528, § 1, 8-1-2023)

18.30.080 Chapter 6, Aquatic Recreation Facilities.

(Ord. No. 019528, § 1, 8-1-2023)

18.30.090 Chapter 7, On-ground Storable Residential Swimming Pools.

(Ord. No. 019528, § 1, 8-1-2023)

18.30.100 Chapter 8, Permanent In-Ground Residential Pools.

(Ord. No. 019528, § 1, 8-1-2023)

18.30.110 Chapter 9, Permanent Residential Spas and Permanent Residential Exercise Spas.

(Ord. No. 019528, § 1, 8-1-2023)

***Editor's note—**Ord. No. 019528, § 9, adopted Aug 1, 2023, amended Ch. 18.30 in its entirety to read as set out herein. The former Ch. 18.30, §§ 18.30.010—18.30.140, pertained to similar subject matter and derived from Ord. No. 18516, § 1, adopted May 31, 2016.

18.30.120 Chapter 10, Portable Residential Spas and Portable Residential Exercise Spas.

(Ord. No. 019528, § 1, 8-1-2023)

18.30.130 Chapter 11, Referenced Standards.

(Ord. No. 019528, § 1, 8-1-2023)

18.30.140 Conflicting Ordinances.

All ordinances and parts of ordinances in conflict with the provision of this chapter are hereby repealed.

(Ord. No. 019528, § 1, 8-1-2023)

Chapter 18.32

SOLAR HEATING, COOLING AND HOT WATER SYSTEMS

Sections:

18.32.010 Recommended Requirements to Code Officials for Solar Heating, Cooling and Hot Water Systems—Adopted.

18.32.010 Recommended Requirements to Code Officials for Solar Heating, Cooling and Hot Water Systems—Adopted.

The publication entitled "Recommended Requirements to Code Officials for Solar Heating, Cooling and Hot Water Systems, June 1980," a copy of which, authenticated by the signature of the mayor and city clerk, and made a public record by resolution of the city council, is on file in the city clerk's office, is adopted as the requirements for solar heating, cooling and hot water systems of the city, as fully as if copied at length in this chapter. The provisions contained in such publication are adopted as mandatory requirements which must be followed with respect to solar heating, cooling and hot water systems in the city and such provisions are not to be considered as just directory or recommended requirements. (Prior code § 6-15)

Chapter 18.36

STANDARD AMUSEMENT DEVICE CODE

Sections:

18.36.010 Adopted.

18.36.020 Section 103.2 amended—Inspections.

18.36.030 Section 105.3 added—Fees.

18.36.040 Section 107 amended—Violations and penalties.

18.36.050 Section 108 deleted and replaced—Board of adjustments and appeals.

18.36.010 Adopted.

The book entitled "Standard Amusement Device Code, 1979 Edition," a copy of which, authenticated by the signature of the mayor and the city clerk, and made a public record by resolution of the city council, is on file in the city clerk's office, is adopted as the amusement device code of the city, as fully as if copied at length in this chapter, but with the changes set forth in this chapter. (Prior code § 6-17 (part))

18.36.020 Section 103.2 amended—Inspections.

Standard Amusement Device Code Section 103.2, inspections, is changed to read:

Section 103.2—Inspections.

(a) The Building Official is hereby authorized to make such inspections and take such action as may be required to enforce the provisions of this Code.

(b) Whenever the Building Official shall find in or upon any amusement ride or device or portion thereof, any condition creating an imminent danger to human life, he shall immediately declare said ride or device to be unsafe and the use discontinued.

(Ord. 16985 § 38, 2008: Ord. 13152 § 279, 1997; prior code § 6-17(1))

18.36.030 Section 105.3 added—Fees.

Standard Amusement Device Code Section 105, permits, is changed by adding a new Section 105.3 entitled "Fees" to read as follows:

Section 105.3—Fees.

No permit shall be valid until the fees as prescribed in Section 107.4 of the Standard Building Code shall have been paid; nor shall an amendment to a permit be approved until the additional fees, if required, shall have been paid.

(Prior code § 6-17(2))

18.36.040 Section 107 amended—Violations and penalties.

Standard Amusement Device Code Section 107, violations and penalties, is changed to read:

Section 107—Violations and Penalties. Any person violating this Article shall be deemed guilty of a misdemeanor and punished by a fine not to exceed two thousand dollars.

(Ord. 9431 § 16, 1988: prior code § 6-17(3))

18.36.050 Section 108 deleted and replaced—Board of adjustments and appeals.

Standard Amusement Device Code Section 108, board of adjustments and appeals, is deleted in its entirety and reworded as follows:

Section 108—Board of Adjustments and Appeals.

The Board of Adjustments and Appeals as established under Section 111 (amended) of the Standard Building Code shall be the designated body for the express purpose of providing for the final interpretation of provisions of this Code.

(Prior code § 6-17(4))

Chapter 18.40

VACANT BUILDINGS*

Sections:

18.40.010 Purpose of chapter.

18.40.020 Definitions.

18.40.030 Vacant building registration.

18.40.040 Exemptions.

18.40.050 Appeal process.

18.40.060 Insurance requirements.

18.40.070 Additional administrative procedures.

18.40.080 Registration and commercial property inspection fees.

18.40.090 Delivery of notices.

18.40.100 Inspections and enforcement.

18.40.110 Emergency response information, signage, and installation of fire suppression systems.

18.40.120 Penalty.

18.40.130 Severability.

18.40.010 Purpose of chapter.

A. The purpose of this chapter is to establish a program for identifying and registering vacant buildings; to determine and establish the responsibilities of owners of vacant buildings and structures; to ensure that vacant buildings are maintained in compliance with applicable city code and to encourage their rehabilitation and/or demolition in efforts to minimize wider community deleterious effects.

B. The city council finds, determines and declares that buildings which remain vacant and unoccupied for any appreciable period of time become a harborage for rodents, an invitation for illegal occupancy and for illegal activities, as well as a fire hazard, and that unkempt grounds surrounding the property invites dumping and rubbish thereon, that such buildings become dilapidated, contribute to commercial and residential blight, depress market values of surrounding property, require additional government services, endanger the public safety and health, and generally remain detrimental to the public good. It is the finding of the city council that buildings that remain vacant with access points boarded over are unsightly, unsafe and have a significant and negative effect on their surroundings.

C. In order to protect the health, safety, morals, and welfare of the citizens of the City of El Paso, to preserve and enhance livability, preserve property values of surrounding buildings, and to ensure that buildings are promptly rehabilitated and/or demolished as appropriate, it is the policy of the city to address vacant building rehabilitation or demolition in accordance with due process requirements.

(Ord. No. 17968, § 1, 3-5-2013)

18.40.020 Definitions.

Unless otherwise expressly stated, the following terms shall for the purpose of this article, have the meanings indicated in this section:

A. "Owner" means a person in whom is vested the ownership or title of real property, including, but not limited to:

1. The holder of fee simple title;

2. The holder of a life estate;

3. The holder of a leasehold estate that includes the vacant portions of the building;

4. The buyer in a contract for deed;

5. A mortgagee, receiver, executor, or trustee in control of real property; and

6. The named grantee in the last recorded deed.

B. "Vacant" means any building, structure, or portion thereof, that regardless of its structural condition, is not occupied for a continuous period of two years from March 1, 2011 (the effective

***Editor's note—**Ord. No. 17968, § 1, adopted March 5, 2013, repealed the former Ch. 18.40, §§ 18.40.010—18.40.140, and enacted a new Ch. 18.40 as set out herein. The former Ch. 18.40 pertained to similar subject matter and derived from Ord. No. 17375, §§ 2—15, 8-24-2010, eff. 3-1-2011.

date of the Vacant Building Ordinance) or from the first day of vacancy, whichever is later, and to which any one of the following conditions apply:

1. It is located in an enforcement area;

2. The city has issued an order to the owner of the building or structure requiring that it be boarded up, fenced, or otherwise secured in an approved manner pursuant to Section 214.001 Texas Local Government Code; or

3. The city has issued a notice of violation of Chapter 18.50 of the City Code to the owner of the building or structure.

C. "Occupied" means that pursuant to and within the scope of a valid certificate of occupancy or within an occupancy use that is authorized for the building or structure designated primarily for nonresidential uses, that one or more persons conduct business in or reside in at least forty percent of the total area of a building or structure which is two stories or fewer (excluding stairwells, elevator shafts, and mechanical rooms); or where one or more persons conduct business in or reside in at least sixty percent of the total area of a building or structure which is more than two stories (excluding stairwells, elevator shafts, and mechanical rooms); or one or more persons reside in any portion of the building or structure where the building or structure is designated for residential use having four dwelling units or less.

D. "Enforcement area" means any area which lies within the boundaries of the Downtown 2015 Plan, as identified in Ordinance No. 016487 dated October 31, 2006, by map attached therein; the Lower Dyer Neighborhood Revitalization Strategy Area, as identified by Resolution dated January 15, 2008, by map attached therein; all of which are incorporated herein by reference. Maps of the enforcement areas are on file with the city clerk.

E. "Certificate of registration" means a certificate of registration issued by the permit official under this chapter to the owner of a vacant building, which may include owner obligations to undertake certain identified improvements to the vacant building during the registration term.

F. "Nonresidential uses" means any principal use of a building, structure, or portion thereof which is an occupancy type or use group other than a residential use group having four dwelling units or less.
(Ord. No. 17968, § 1, 3-5-2013)

18.40.030 Vacant building registration.

A. A person commits an offense if the person owns a vacant building without a valid certificate of registration or exemption issued pursuant to this chapter.

B. The owner or the owner's authorized agent shall submit an application to the permit official to register a building or apply for an exemption not later than thirty days after the building becomes a vacant building. One or more of the owners may designate an individual to execute the application on behalf of the owner(s).

C. The registration application shall be submitted on forms provided by the permit official. The registration application shall include the following information supplied by the applicant:

1. The address and description of the premises;

2. The building height, number of stories contained therein, area in square feet of each story, whether each story is above or below ground level, and year built;

3. The date on which the vacant building was last legally occupied, a description of the last or current use of the vacant building, and a description of any hazardous materials, uses, or conditions that currently exist or previously existing in the vacant building.

4. The names, addresses and telephone numbers of the owner or owners and authorized agents;

5. The name and address of any third party who the owner has entered into a contract or agreement with for property management;

6. The names and addresses of all known lien holders, tenants, and all other parties with an ownership or possessory interest in the building;

7. A telephone number where a responsible party can be reached at all times during business and nonbusiness hours;

8. The period of time the building is expected to remain vacant;

9. If the owner plans to return the building to sixty percent or more occupancy, the estimated date for returning the building to such occupancy;

10. If the owner plans to demolish the building, the date the building is scheduled for demolition;

11. If the owner proposes to rehabilitate or renovate the building, the date the building rehabilitation or renovation is scheduled to commence and be completed in accordance with all applicable codes;

12. If the owner proposes to retain the building, the measures that will be taken to try to reduce any adverse impact on the property values of adjacent property from the retention of the vacant building;

13. The plan for regular maintenance of the building during the period of vacancy with owner certification that the building is compliant with all applicable codes;

14. The measures the owner will employ to secure the building in accordance with all applicable zoning, property maintenance, historic preservation and building codes;

15. The measures the owner will employ to monitor and inspect the property and schedule for periodic inspection by the owner;

16. Proof of insurance required by Section 18.40.070 under this chapter;

17. The name of the addressee and the mailing address to which all notices or other communication required under this chapter may be delivered, including communication regarding registration and vacant building status;

18. The initial information required by Section 18.40.120 for emergency response information;

19. As applicable, the locations of emergency response signage required by Section 18.40.120;

20. If the owner was previously issued a certificate of registration for the vacant building, proof of compliance with any owner obligations in the prior certificate of registration or if the obligations were not met, documentation demonstrating significant progress in addressing the identified owner obligations; and

21. Any other reasonably related additional information required by the permit official.

D. A separate registration application is required for each vacant building, regardless of any separate occupied buildings that may also be located at the same street address. If more than one vacant building is located at the same street address, a separate certificate of registration is required for each vacant building. In addition, only one registration application is required for a single vacant building that has more than one street address.

E. The permit official shall, within one hundred eighty days, take one of the following actions regarding the filing of a completed application for which all required established fees have been paid:

1. Issue a certificate of registration if the permit official determines that:

a. The applicant has complied with all requirements for issuance of the certificate of registration;

b. The applicant has not made a false statement as to a material matter in an application for a certificate of registration; and

c. The applicant or owner has no outstanding fees charged under this chapter.

2. Deny the certificate of registration as provided under subsection F.

3. Inform the applicant that the certificate of registration cannot be issued within the time period under this section and advise the applicant as to the date on which the permit official shall make the required determination, which shall be the earliest date practicable.

The failure of the permit official to take action as required under this subsection shall not result in an automatic registration of a vacant building under this chapter.

F. In issuing a certificate of registration for a vacant building designated for nonresidential uses, the permit official will enumerate in the certificate of registration any owner obligations to undertake certain property improvements to the vacant building, which will be based on the owner's intended use, rehabilitation, demolition, or maintenance of the vacant building, and the schedule for such undertaking in accordance with all applicable codes or as identified in the owner's application submitted pursuant to subsection C., if the latter accomplishes an earlier completion of improvements.

G. If the permit official determines, upon initial review or inspection that the application does not address the requirements of this chapter, the permit official shall notify the owner and allow reasonable time for the revision of the application. If, upon final review of the completed application, the permit official determines that the requirements of subsections C. and E. have not been met, the permit official shall deny a certificate of registration to the owner.

1. If the permit official determines that the owner should be denied a certificate of registration, the permit official shall deliver written notice to the owner that the application is denied and include in the notice the reason for denial.

2. The owner may appeal the determination of the permit official by following the procedure provided in Section 18.40.060.

H. The permit official shall give notice of issuance, of a certification of registration for a vacant building to lien holders, tenants, and other parties, as identified in the application.

I. Except as otherwise provided herein, the certificate of registration for a vacant building shall terminate the earlier of:

1. One year after date of issuance;

2. The date the vacant building changes ownership, as determined by the permit official;

3. The date the vacant building becomes occupied, as determined by the permit official; or

4. The date the vacant building is demolished, as determined by the permit official.

J. Requests for termination of a certificate of registration shall be in writing to the permit official and accompanied by documentation in support of the request. The failure of the permit official to terminate the certificate of registration as provided herein within thirty days after the date that the written request was made shall constitute a denial of the request for the termination and the owner may appeal such action by following the procedure provided in Section 18.40.060.

K. A certificate of registration issued under this chapter is transferable to a new owner during the first six months following issuance of the certificate of registration and upon an owner's written request to the permit official for a transfer of the certificate of registration, provided that:

1. The owner has complied with the provisions of this chapter or other city ordinance or state or federal law applicable to the vacant building;

2. Payment of the administrative established fee for transfer of the certificate of registration; and

3. The new owner's acceptance of the application information for the certificate of registration to be transferred.

The failure of the permit official to transfer the certificate of registration as provided herein within thirty days after the date that the written request was made shall constitute a denial of the request for the transfer and the owner may appeal such action by following the procedure provided in Section 18.40.060.

L. An owner or applicant shall notify the permit official in writing within thirty days after any material change in the information contained in the application for a certificate of registration for a vacant building, including any changes in ownership of the property or intended use, rehabilitation, demolition, or routine maintenance of the vacant building.

M. If the permit official has reason to believe that a building is a vacant building and it is unregistered, the permit official shall evaluate the building and make a determination as to whether the

building is a vacant building within the meaning of this chapter. If the permit official finds the building is a vacant building:

1. The permit official shall give written notice of such determination to the owner of the subject building. The notice of determination shall identify the building; street address or legal description of the property; state the factual basis for the determination; classify the building as a vacant building; and the obligations of an owner to register the building as set forth in this chapter.

2. The notice under this section must comply with the requirements of Texas Local Government Code Section 54.005.

3. The permit official satisfies the requirements of this section to make a diligent effort, to use his best efforts, or to make a reasonable effort to determine the identity and address of an owner if the permit official searches the following records:

a. Real property records of El Paso County, El Paso, Texas;

b. El Paso Central Appraisal District records;

c. Records of the secretary of state;

d. Assumed names records of the El Paso County, El Paso, Texas;

e. Tax records of the city; and

f. Utility records of the city.

4. When the permit official mails a notice in accordance with this section to an owner and the United States Postal Service returns the notice as "refused" or "unclaimed," the validity of the notice is not affected, and the notice is considered delivered.

5. An owner may appeal the determination of the permit official that the building should be classified as a vacant building under this chapter by following the procedure provided in Section 18.40.060.

(Ord. No. 17968, § 1, 3-5-2013)

18.40.040 Exemptions.

A. An owner or the owner's authorized agent may apply for an exemption to the registration requirement or the vacant building plan requirement under the following circumstances. The applicant requesting an exemption under this section shall submit an application to the permit official on forms provided and shall pay the administrative established fee. The permit official shall issue the exemption provided herein upon a finding that the applicant has complied with all requirements for issuance of the exemption and the applicant has not made a false statement as to a material matter in the application. The failure of the permit official to issue an exemption provided herein within thirty days after the date that the application was made shall constitute a denial of the application for an exemption and the owner or the owner's authorized agent may appeal such action by following the procedure provided in Section 18.40.060.

B. A vacant building which has suffered fire damage or damage caused by extreme weather conditions may be exempted from the registration requirement under this chapter for a period of ninety days after the date of the fire or extreme weather event. The exemption request shall include the following information supplied by the applicant:

1. An address and description of the premises;

2. Detailed information regarding the date the damage was suffered and the extent of the damage if the request for an exemption is being submitted on this basis;

3. The names and addresses of the owner or owners; and

4. A statement of intent to repair and reoccupy the building in an expedient manner, or the intent to demolish the building.

C. Adaptive reuse alternative. Subject to the approval of the city official, the applicant may apply for an adaptive reuse construction permit and complete the required compliance repairs, alterations, additions, and or change of occupancy in accordance with the provisions set forth in the currently adopted International Existing Building

Code (IEBC). The applicant requesting this adaptive reuse alternative exemption must also comply with the following conditions:

1. The applicant shall be required to submit a vacant building registration application in accordance with Chapter 18.40 Vacant Buildings; and

2. Upon failure to comply with the requirements of the adaptive reuse alternative and the requirements prescribed within the adopted IEBC, the applicant shall be denied, by the city official, the adaptive reuse alternative exemption and shall then continue to comply with all the requirements prescribed within Chapter 18.40 Vacant Buildings.

(Ord. No. 17968, § 1, 3-5-2013)

18.40.050 Appeal process.

An owner, applicant or other person who has, in this chapter, been granted a right of appeal from any decision or action, may appeal such decision or action to the building and standards commission as provided herein.

A. The appeal shall be filed in writing with the permit official within thirty days after the date of issuance of the notice of decision or action.

B. A public hearing shall be scheduled within forty-five days of the filing of such notice of appeal, and notice of the date, time and place shall be provided in writing at least ten days prior to the hearing to the appellant and to the person designated on the application form to receive notices under this chapter, if different.

C. The building and standards commission shall hear all evidence presented and may uphold or overturn the decision or action of the permit official based on the application of the applicable provisions and requirements of this chapter.

D. The decision of the building and standards commission shall be final.

(Ord. No. 17968, § 1, 3-5-2013)

18.40.060 Insurance requirements.

A. Prior to the issuance of a certificate of registration for any vacant building designated for nonresidential uses, the owner shall procure and keep in full force and effect at all times during the registration term, commercial general liability and property insurance coverage, with minimum combined bodily injury (including death) and property damage limits of not less than one million dollars for each occurrence and two million dollars annual aggregate.

(Ord. No. 17968, § 1, 3-5-2013)

18.40.070 Additional administrative procedures.

A. Authorization for investigation.

1. The permit official may investigate any building for purposes relating to this chapter and for compliance with applicable City Codes if:

a. The owner fails to register the vacant building or obtain an exemption within thirty days following a final determination by the permit official that the owner's building is a vacant building subject to the provisions of this chapter;

b. The application for a certificate of registration has been denied and the right to appeal has expired; or

c. The owner fails to comply with the intended use, rehabilitation, demolition, or maintenance of the vacant building as stated in the application submitted pursuant to this chapter within thirty days after having received a written notice by the permit official of the violation, deficiency or failure to comply.

B. Loss of certificate of occupancy. If the permit official determines upon investigation that the building or structure itself or a portion thereof is in violation of an applicable City Code, the permit official may take action to suspend or revoke a certificate of occupancy as 1s authorized under such code.

(Ord. No. 17968, § 1, 3-5-2013)

18.40.080 Registration and commercial property inspection fees.

A. The established fee for a certificate of registration shall be charged and collected at the time of application submittal. The established registration fee shall be for the administrative costs for

registering and processing the vacant building owner registration form, and inspecting the vacant building and premises for compliance with the requirements of this chapter.

B. The established registration fee shall be paid on annual basis.
(Ord. No. 17968, § 1, 3-5-2013)

18.40.090 Delivery of notices.

A. Any written notice that the permit official is required to give an owner under this chapter is deemed to be delivered:

1. On the date the notice is hand delivered to the applicant; or

2. Three days after the date the notice is placed in the United States Mail with proper postage and properly addressed to the owner at the address provided in the most recent registration application.
(Ord. No. 17968, § 1, 3-5-2013)

18.40.100 Inspections and enforcement.

A. The permit official is authorized to administer this chapter and all enforcement officials are authorized to enforce the provisions of this chapter.

B. For all purposes relating to vacant building applications and registrations, the permit official is authorized at a reasonable time to inspect the premises that are the subject of the application or registration, to include but not be limited to, conducting an inspection in order to determine whether the owner's intended use, rehabilitation, demolition, or maintenance of the vacant building meets the requirements of the City Code for demolition, rehabilitation or maintenance of the status of vacancy, as appropriate.

C. For all purposes relating to enforcement under this chapter, an enforcement official is authorized at a reasonable time to inspect:

1. The exterior of a vacant building or other building that appears to the enforcement official to be unoccupied in whole or in part;

2. The interior of a vacant building or other building that appears to the enforcement official to be unoccupied in whole or in part, if permission of the owner, operator, or other person in control is given, or a search warrant or writ of entry is obtained.
(Ord. No. 17968, § 1, 3-5-2013)

18.40.110 Emergency response information, signage, and installation of fire suppression systems.

A. An owner of a vacant building shall provide the permit official with the name, street address, mailing address, and telephone number of a person or persons who can be contacted twenty-four hours a day, seven days a week, in the event of an emergency condition in or on the premises of the vacant building. An emergency condition includes any fire, natural disaster, collapse hazard, burst pipe, serious police incident, or other condition that requires an immediate response to prevent harm to property or the public.

B. The owner of the vacant building shall notify the permit official within five days after any change in the emergency response information.

C. The owner of the vacant building, or an authorized agent, must arrive at the premises within one hour after a contract person named under this section is notified by the city or emergency response personnel that an emergency condition has occurred on the premises.

D. Upon issuance of a certificate of registration for any vacant building designated for non-residential uses or for residential use having four or more dwelling units, the owner shall install placards approved by the fire chief or designee, which apply the following marking system to alert city or emergency response personnel to potential hazards:

1. Any vacant building determined by the fire chief or designee to be especially unsafe in case of fire, under Section 110, Chapter 9.52 of the City Code, shall be identified and marked pursuant to the requirements of El Paso City Code Chapter 9.52, Section 311.5.

2. Prior to receiving a placard, all buildings shall be inspected thoroughly by the fire chief or designee.

E. Where a vacant building is subject to the requirements of this section and Chapter 9.52 of the City Code, whichever being the more restrictive shall govern.

F. The owner of a vacant building that has a certificate of occupancy which is designated as an assembly (A), business (B), educational (E), institutional (I), hazard (H), factory (F), mercantile (M) building, Residential (R) (excluding buildings with four or fewer dwelling units), or utility (U) shall install a fire suppression system that conforms to the standards set forth in the currently adopted International Fire Code and maintain that system in good working order.

Exception: The sprinkler requirement for vacant structures shall not apply when the premises have been cleared of all combustible materials and debris and, in the opinion of the fire code official, the type of construction, fire separation distance, and security of the premises does not create a fire hazard.

(Ord. No. 17968, § 1, 3-5-2013)

18.40.120 Penalty.

A. A person who violates a provision of this chapter, or who fails to perform an act required of the person by this chapter, commits an offense. A person commits a separate offense each day or portion of a day during which a violation is committed, permitted or continued.

B. An offense under this chapter is punishable by a fine not to exceed two thousand dollars.

C. The penalty provided herein is in addition to any other enforcement remedies that the city may have under city ordinances and state law. Nothing in this chapter shall preclude the city from taking administrative or civil action as may be permitted by law.

(Ord. No. 17968, § 1, 3-5-2013)

18.40.130 Severability.

In the event that this ordinance or any provisions of it shall be deemed by a court to be in conflict with a provision of general law, or if adherence to or enforcement of any section of this chapter shall be restrained by a court, the remaining provisions of this local law shall not be affected.

(Ord. No. 17968, § 1, 3-5-2013)

Chapter 18.42

DANGEROUS STRUCTURES

Sections:

18.42.010 Authority to secure.

18.42.020 Liens.

18.42.010 Authority to secure.

A. The building official or the director, as defined in Chapter 2.38 of this Code, may secure a building before a public hearing is held by the building and standards commission under the following circumstances:

1. The building is unoccupied or is occupied only by persons who do not have a right of possession and

2. The building official or the director determine that violations of Chapter 18.50 exist in the building.

B. No later than eleven days after securing the building the building official or the director shall give notice to the owner by:

1. Personal service of a written notice; or

2. Depositing the notice in the United States Mail addressed to the owner at the owner's post office address.

C. If personal service cannot be obtained and the owner's post office address is unknown then service shall be by:

1. Publishing notice at least twice within a ten-day period in a newspaper of general circulation in the city; or

2. Posting the notice on or near the front door of the building.

D. The notice must contain:

1. An identification, which is not required to be a legal description, of the building and the property on which it is located;

2. A description of the violations of Chapter 18.50;

3. A statement that the city has secured the building;

4. A statement of the amount the city incurred securing the building, that the owner owes the city the amount incurred, and that the city will secure a lien against the real property for the assessed amount in the event of non-payment; and

5. A statement that the owner has thirty days from the date the building was secured to request a hearing before the building and standards commission in regard to any matter relating to the city's securing of the building.

(Ord. No. 17774, § 2, 4-17-2012)

18.42.020 Liens.

A. If the city incurs expenses to secure a building under this chapter, the city may assess the expense against the owner and the real property. If the owner fails to satisfy the debt the city can place a lien against the real property the building was located on, unless it is a homestead.

B. The notice must contain the name and address of the owner if that information can be determined with diligent effort, as defined in Chapter 2.38, a legal description of the real property on which the building was located, the amount of expenses incurred by the municipality, the balance due and that it accrues interest at a rate of ten percent a year from the assessment until paid in full.

C. The lien arises and attaches to the property at the time the notice of the lien is recorded in the El Paso Real Property Records.

D. The lien will be superior to all judicial liens and inferior only to bona fide mortgage liens recorded prior to the filing of the notice of dangerous structure hearing.

E. The lien is extinguished when the amount is paid in full.

F. The city may also seek to reduce the civil penalty to judgment.

(Ord. No. 17774, § 3, 4-17-2012)

Chapter 18.44

GRADING*

Sections:

18.44.010 Short title.

18.44.020 Purpose.

18.44.030 Definitions.

18.44.040 Compliance with provisions.

18.44.050 Permits required.

18.44.060 Exceptions from permits.

18.44.070 Permit application.

18.44.080 Insurance and bonds.

18.44.090 Warranty.

18.44.100 Permit application, staff review.

18.44.110 Issuance, denial, suspension or revocation of permit.

18.44.120 Appeals.

18.44.130 Period of validity of permits.

18.44.140 Permit fees.

18.44.150 Work hours specified.

18.44.160 Removing hazardous conditions.

18.44.170 Responsibilities of the owner.

18.44.180 Responsibility and authority of the permit official.

18.44.190 Authority to issue citations.

18.44.200 Engineering controls for grading.

18.44.210 Penalty—Severability.

18.44.220 Permit closeout procedure.

* **Editor's Note:** Ord. No. 17516, § 1, adopted March 29, 2011, repealed the former Ch. 18.44, §§ 18.44.010—18.44.250, and enacted a new Ch. 18.44 as set out herein. The former Ch. 18.44 pertained to similar subject matter and derived from Ord. 8867 (part), 1986; Ord. 9431, § 17, 1988; Ord. 11706 §§ 1, 2, 1993; Ord. 13110 §§ 1—3, 1997; Ord. 13152 §§ 280—284, 293—295, 1997; Ord. 13956 §§ 44—61, 74, 76—86, 1999; Ord. 16897 § 1, 2008; Ord. 16985 §;s 39, 40 (part), 45, 46, 2008; Ord. No. 17390, §§ 25—27, 31, 32, 8-24-2010, eff. 9-1-2010.

18.44.010 Short title.

This chapter shall be known and may be cited as the "grading ordinance".
(Ord. No. 17516, § 1, 3-29-2011)

18.44.020 Purpose.

The provisions of this chapter are to complement the subdivision ordinance and the zoning ordinance, and to make the uses permitted by these ordinances more feasible and acceptable in the interest of the individual property owner, the adjacent property owner and the general public. It shall be the purpose of this chapter:

A. To protect life, limb, property, the public welfare and the physical environment by regulating grading on public and private property;

B. To ensure that proposed grading shall result in the minimum possible disturbance of terrain and natural land features necessary to construct residences or other permitted buildings or structures, or to conduct other legal land uses;

C. In conjunction with Chapter 18.46 — Landscaping, to prevent grading which unnecessarily changes the physical character of terrain, mountains, and natural features;

D. To ensure that the grading will not adversely affect the natural topographic drainage features, result in excessive erosion, degrade natural drainage paths or other drainage features or alter natural surface runoff creating flood problems or irreparable scars;

E. To stabilize steep hillsides and ensure that lateral support to either public or private property is not endangered;

F. To regulate grading in a manner that stabilizes sites to prevent soil erosion both during construction and after construction;

G. To encourage harvesting and preservation of rainwater within the project site, reduce dependence on groundwater, and reduce potential offsite flooding and erosion;

H. To ensure proper method and construction for clearing, grubbing, excavating, filling and land grading operations;

I. To prevent grading that unnecessarily changes open spaces and to mitigate any adverse effects by retaining and/or restoring trees and vegetation;

J. In conjunction with Chapter 15 - Stormwater Management, to prevent erosion; and

K. In conjunction with the Drainage Design Manual and Design Standards for Construction - to use sustainability goals to stabilize graded sites. (Ord. No. 17516, § 1, 3-29-2011)

18.44.030 Definitions.

For the purpose of this chapter, the following words have the meaning set forth in this section:

A. "Best management practices" ("BMP") means schedules of activities, prohibitions of practices, maintenance procedures, and other management practices such as effective integration of stormwater management systems (storage/controlled discharge), with appropriate combinations of landscape conservation, enhancement, structural controls, and impervious cover, which provide an optimum way to eliminate soil erosion and prevent soil from leaving the site though water runoff and/or wind during construction.

B. "Clearing" means the removal of surface vegetation without modifying, impacting or improving the drainage pattern.

C. "Dripline" means a vertical line run through the outermost portion of the crown of a tree and extending to the ground.

D. "Engineer" means a professional engineer currently licensed and registered with the State of Texas.

E. "Excessive erosion" — soil particle movement from a destabilized graded site that causes an off-site impact, public nuisance and/or creates a hazardous condition as determined by the permit official.

F. "Flood" or "flooding" means a general and temporary condition of partial or complete inundation of normally dry land areas from (1) the overflow of waters or (2) the unusual and rapid accumulation of runoff of surface waters from any source.

G. "Grading" means any disturbance of the surface of the land with heavy equipment that may modify or impact existing drainage patterns.

H. "Grading stabilization plan" ("GSP") means a plan for the purposes of stabilizing sites after completion of the grading operation or if the site becomes idle for more than one hundred eighty calendar days to prevent excessive erosion.

I. "Heavy equipment" means self powered, self propelled or towed mechanical devices, equipment and vehicles of the nature customarily for use in agriculture, mining, industry, business, transportation, building or construction such as tandem axle trucks, backhoes, trenchers, loaders, tractors, bulldozers, graders, cranes, forklifts, or similar like equipment but excluding automobiles, recreational vehicles and boats and their trailers.

J. "Natural drainage path" - a flowpath/channel/watercourse/wash/stream as delineated in the city's natural drainage path map, plus an additional twenty feet buffer on each side of the rim, as delineated in said map.

K. "Natural state" means the topography that existed prior to any disturbance of land as certified by a licensed surveyor.

L. "Owner" shall mean the person or entity that has any ownership interest in the property on which grading is proposed or has taken place or such owner's authorized agent.

M. "Permitee" means the governmental entity, utility company, contractor, person or business entity that has received a permit pursuant to this chapter.

N. "Processed material" means naturally occurring, materials such as sand, gravel and rock that have been subjected to any process other than initial excavation such as, but not limited to, screening, crushing, washing and segregating.

O. "Revegetation" means the restoration of formerly undisturbed areas through the replanting of appropriate native, non-invasive, adaptive and drought tolerant vegetation.

P. "Site" means the land or water area where any facility or activity is physically located or conducted, including adjacent land and slopes used in connection with the facility or activity.

Q. "Slope" means the ratio of elevation change to horizontal distance, expressed as a percentage.

The slope is computed by dividing the vertical distance by the horizontal distance and multiplying the ratio by one hundred.

R. "Soil" means dirt, sand and other similar earth matter, rocks and other solid or semisolid mass material, whether produced by man or nature, but shall not include the matter consisting of the infrastructure or appurtenances thereto.

S. "Special flood hazard area" is defined in Chapter 18.60.

T. "Stabilization measure" means schedules of activities, prohibitions of practices, maintenance procedures, and other management practices such as effective integration of stormwater management systems (storage/controlled discharge), with appropriate combinations of landscape conservation, enhancement, structural controls, and impervious cover, which provide an optimum way to eliminate soil erosion and prevent soil from leaving the site though water runoff and/or wind after the grading is complete or the site becomes idle for more than one hundred eighty calendar days.

U. "Stormwater" means stormwater runoff, snowmelt runoff, and surface runoff and drainage.

V. "Structurally stabilized site" means a slope that is constructed with a factor of safety as established in this chapter.
(Ord. No. 17516, § 1, 3-29-2011)

18.44.040 Compliance with provisions.

A. No grading shall be done within the city without complying with the requirements of this chapter. All approvals of the permit official shall be in writing and issued in advance of the activity being approved.

B. Posting permit. A copy of the grading permit issued pursuant to this chapter shall be posted on the grading site during all hours of operation.

C. No blasting shall be permitted under this chapter.

D. At any time that a permit is required by this chapter, the applicant requesting the permit shall be responsible for contacting the "one call" notification system for the area and shall be required to furnish a verification number confirming that such a "one call" has been made as part of the application for grading permit. This requirement shall create no duty, express or implied, on the part of the city to verify that such a "one call" has been made by the applicant.

E. Work for which a grading permit has been issued under this chapter shall be executed in conformance with the grading plan approved by the permit official and shall not be abandoned or left incomplete.

1. Failure to continue significant work on a grading site once grading has begun or failure to complete the work within the time allowed in the grading permit, as limited in this chapter, may be determined by the permit official to be an abandonment of the work required by the permit, and such abandonment will constitute a violation of this chapter.

2. Having persons or equipment at a site but not executing the work shall not be construed to be significant work.

F. The grading stabilization plan (GSP) shall conform to the guidelines provided by this chapter.

G. In conjunction with this chapter, the applicant must comply with the requirements of the Stormwater Pollution Prevention Plan (SWPPP) as defined in Chapter 15.

H. No grading shall be done in an area of special flood hazard unless permitted and the grading meets the requirements of Chapter 18.60.
(Ord. No. 17516, § 1, 3-29-2011)

18.44.050 Permits required.

A. A grading permit is required and may be issued by the permit official for the following activities:

1. The reshaping of the land to conform to approved plans for construction on the property;

2. If a borrow or waste permit is required as part of the grading, a grading permit is required for the borrow and/or the waste site as well as a grading permit for the site at which the grading

takes place. All requirements of the grading permit as part of a borrow or waste site shall be observed except that earthwork need not balance within the borrow or waste site.

B. When materials are to be borrowed from or wasted to a development site, a borrow or waste grading permit is required and may be issued by the permit official.

C. Proposed subdivisions. If property is required to be subdivided pursuant to Title 19, grading permits are required and shall be issued when the following requirements are met:

1. A grading permit shall not be issued by the permit official until preliminary approval on a subdivision/plat application or final approval on a combination plat application (as allowed in Chapter 19.01.060) has been granted by the city plan commission or administrative approval on a minor subdivision has been granted by the subdivision coordinator as applicable;

2. If the grading plan and/or drainage plan changes after the preliminary plat approval was granted by the city plan commission or administratively by the subdivision coordinator as applicable, such changes shall not be allowed until approved by the permit official;

3. A borrow or waste permit meeting the requirements of this chapter may be issued by the permit official pursuant to the requirements of this chapter.

(Ord. No. 17516, § 1, 3-29-2011)

18.44.060 Exceptions from permits.

Permits will not be required under the exceptions listed hereafter. The exceptions concern only the obligation to apply for a permit and the exemption from the requirement of obtaining a permit does not relieve the owner from complying with the remaining provisions of this chapter. A stormwater pollution prevention plan and authorization to discharge stormwater under the TPDES construction general permit shall be required when required by state regulations. The city engineer or other designee of the city manager reserves the right to require a grading stabilization plan if it is determined that the excepted grading activity has the potential to cause off-site impacts. The person engaged in grading shall have the burden of establishing that he qualifies under any of the following exceptions:

A. If the work is to be performed in connection with construction on a legally platted residential lot or an unplatted residential lot not exceeding one acre in size, and the grading is included as part of a valid building permit, a grading permit shall not be required. This exception shall not apply to any lot of any size within the Mountain Development Area.

B. Where the work to be performed is routine agricultural or land management operations necessary for cultivation of the soil of a farm or ranch;

C. Where the work is performed as part of a city solid waste disposal operation;

D. Where the work is small in depth, area or impact. It includes landscaping that does not impact existing drainage patterns, such as tree planting, on a residentially used property or interment in properly zoned cemeteries.

E. Demolition of existing buildings and structures including removal of the foundation system, provided that the original grades and drainage shall not be modified.

F. Quarry operations.

G. Road access to the area being surveyed and/or is the subject of geotechnical work, provided that grading for such access is less than twenty feet in width.

H. Maintenance activities to restore a site to the previously approved grading plan.

I. If the work is to be performed in connection with an existing commercial building permitted as determined by the permit official.

J. Maintenance activities performed as part of the duties and services related to street and right-of-way maintenance pursuant to El Paso City Code, Section 13.02.010.

(Ord. No. 17516, § 1, 3-19-2011; Ord. No. 17809, § 1, 6-5-2012, 6-11-2012)

18.44.070 Permit application.

Any person desiring a permit under this chapter shall apply to the permit official upon forms furnished by the city. The application will be signed by the owner of the property where the work is to be performed or by his duly authorized agent. The applicant shall assure that all application data are correct. Any falsification of application data shall invalidate the permit. Areas within the designated Mountain Development Area must meet the requirements of this chapter and Chapter 19.24. Every application shall contain the following information:

A. The location, nature and extent of the proposed work and a statement as to the intended use of the site. Changes in the intended use of the land involved will require reapplication for a permit;

B. The name and address of the owner of record (and owners, if more than one) of the property on which the work is to be performed;

C. The names, addresses and phone numbers of the persons or organizations that will perform the work and of the person who will be in effective control of the work;

D. The amount of material to be excavated, moved or filled and the proposed schedule of the work;

E. A verification number confirming that the applicant has contacted a "one call" notification system as required by this chapter;

F. Grading plan. The following are requirements to be included in the grading plan:

1. Existing and proposed contours that will shape the site, showing in detail the contours, grades, elevations and all facilities for control and disposition of stormwater runoff; the extent of all cuts and fills;

2. Boundaries of the property involved;

3. The location of all buildings and structures on-site and those on adjacent properties within a horizontal distance equal to three times the height of the proposed slope;

4. The plans and profiles for any facilities, walls, storm drains or other protective measures to be constructed as part of or in connection with the proposed work;

5. Plans and drawings shall be prepared, sealed, signed and dated by an engineer;

6. Shall indicate where the borrow is to be used, if applicable, and a separate grading plan for the waste of the borrow site shall be submitted if the site is unbalanced by more than ten percent;

7. The grading plan shall indicate where the source of the waste is located and a separate grading plan for the site where the waste will be taken shall be submitted.

8. The grading plan shall clearly identify the areas to remain undisturbed and manner in which they will be protected.

9. Where a natural drainage path will be crossed by construction vehicles regularly during construction, a temporary crossing shall be designed by an engineer and included in the grading plan. It shall be stabilized immediately after completing the grading operation in accordance with the GSP.

10. Prior to any disturbance in waters of the United States, the waters of the State of Texas or federally regulated wetlands, the permittee must verify whether a permit will be required from the U.S. Army Corps of Engineers (USACOE) and the Texas Commission for Environmental Quality (for the Environmental Protection Agency). Formal determination from the USACOE on jurisdiction or a permit from the USACOA must be provided.

11. Vertical and horizontal benchmark information.

12. Any additional information required by the permit official, that may be required to carry out the purpose and intent of this chapter.

G. Drainage plan. The following information is required to be included in the drainage plan:

1. Existing watersheds/drainage areas and how stormwater falling on or through the site will be contained or handled after grading has been completed;

2. Sufficient drainage information to demonstrate proper interim and final handling of stormwater runoff, including existing contours to a point where offsite flow pattern impacts can be determined;

3. A drainage study by an engineer where the proposed work covered by the application results in changes to existing patterns of drainage or results in the requirement for storm drainage facilities in accordance with the Drainage Design Manual;

4. Grading details for grading conducted in natural drainage ways shall be specifically identified in plans and drawings.

H. Grading stabilization plan (GSP). GSP is for the stabilization of the site/slopes after the grading operation is complete (post construction) or if the site becomes idle for more than one hundred eighty consecutive calendar days. These requirements are in addition to meeting the requirements of Chapter 15 which govern construction activities and erosion control BMPs. The following information is required to be included in the GSP:

1. Show all disturbed areas that will be exposed to erosion for more than one hundred eighty consecutive calendar days, including finalized graded areas.

2. The location and description of stabilization measures to be implemented to stabilize the site and prevent excessive erosion and degradation of the areas adjacent to the site specifying the methods to be used for water erosion, wind erosion and sediment control;

3. Detail the maintenance measures, sequencing/scheduling plan, inspections, verification procedures and documentation that will be followed to ensure that grading and erosion controls are in place and functioning effectively. Ongoing maintenance measures after the site has been stabilized must be included.

4. Certification that the GSP was prepared by an engineer.

5. The GSP may be combined with the grading plan if all facilities and measures are shown on the grading sheets without obscuring the clarity of either the grading plan or the GSP;

I. Stormwater pollution prevention plan (SWPPP) shall be required by the permit official when required by state regulations. Requirements for the SWPPP are defined in Chapter 15.

J. Geotechnical investigation. A geotechnical report prepared by an engineer indicating the types and characteristics of the soil formations with substantiating data and opinion as to slopes, fills, excavations to safely construct the proposed development of the site and the stabilization measure to be used. The minimum requirements for the geotechnical report include, but are not limited to slope stability, fill compaction requirements, grading operation restrictions and guidelines, soil type and stabilization requirements. In the event that a geotechnical investigation is not necessary, adequate documentation/justification must be provided to the permit official for evaluation.

K. A borrow or waste grading application shall include a projected land use plan for the borrow or waste area.

L. Permit application documents required by this chapter shall be submitted to the city in one hard copy and one electronic copy in pdf format.

M. All bonds and insurance as required in this chapter before issuance of the permit.
(Ord. No. 17516, § 1, 3-29-2011)

18.44.080 Insurance and bonds.

A. Insurance requirements. No permit applicant shall be issued a permit until the applicant presents evidence satisfactory to the permit official that the applicant meets the following minimum insurance requirements:

1. Insurance shall not be required for projects less than one acre in size of disturbed land.

2. The applicant shall procure and shall maintain during the term of the permit such commercial general liability, property damage liability and vehicle liability insurance, naming the permittee and any subcontractor performing work associ-

ated with the permit as insured, co-insured or additional insured for claims for damages for personal injury, including accidental death, as well as from claims for property damage that arise from work associated with the permit.

3. Minimum limits of liability and coverage shall be two hundred fifty thousand dollars for bodily injury liability, including death, for each person and five hundred thousand dollars in the aggregate and one hundred thousand dollars for property damage for each occurrence and one hundred thousand dollars in the aggregate.

4. Such insurance shall be written by an accredited insurance company under the supervision of the Board of Insurance Commissioners of the State of Texas. Evidence of compliance with these insurance requirements shall be considered as having been met when copy of the insurance policy or a certificate of insurance has been filed with and approved by the permit official. Such policy shall include an endorsement that the city is named as an additional insured to the full amount of the policy limits and that the permit official shall be notified at least thirty days in advance in the event the policy or policies are canceled and ten days in advance for non-payment of policy premiums. The required endorsements shall be provided to the permit official prior to issuance of the permit. The permittee shall maintain said insurance with a solvent insurance company authorized to do business in Texas. The policy shall provide that the insurer will defend against all claims and lawsuits which arise and will pay any final judgment of a court of competent jurisdiction against the city, its officers, agents, servants or employees and permittee, his officers, agents, servants or employees. Failure by permittee to keep the policy in full force and effect throughout the term of the permit shall be grounds for cancellation of the permit.

5. Permit applicants who have provided certificates of insurance to the city pursuant to the requirements of a chapter of the City Code other than this chapter that meet all of the requirements established in this chapter shall not be required to obtain an additional insurance but are required to provide such certificates of insurance showing present coverage as required in this chapter.

6. Government agencies: Permits shall be required in connection with all city (including but not limited to El Paso Public Service Board/El Paso Water Utilities) public works projects provided that no permit fee shall be required for such projects. Permits shall be required for county, state or federal public works projects only when such projects include grading on the city's right-of way. When grading work is performed by the employees of a governmental agency, the insurance requirements of this section may be met by providing certification that government agency obtaining the permit is self-insured. Grading work performed by those contracting with a governmental agency shall provide the insurance required herein.

B. Permit bond requirements. No permit shall be issued under this chapter to any person, firm or corporation applying for a permit until such applicant has filed with the city engineer or other designee of the city manager a bond for the amount of fifty thousand dollars, signed by a surety company authorized to do business in Texas. The city shall be named as the obligee under such bond. The bond shall provide that the principal and its agents, employees, and subcontractors shall comply with all provisions of this chapter, that the principal shall pay all damages which are sustained by the city and which are caused by failure of the principal, its agents, employees or subcontractors to comply with the provisions of this chapter, and that the principal shall indemnify the obligee against claims arising out of such failure to comply, including but not limited to the warranty period required in this chapter. Bonds shall be issued for a duration sufficient to cover the warranty period required in this chapter. The surety shall be acceptable to the city as to solvency and such surety shall be listed on the current Department of the Treasury's Listing of Approved Sureties, Department Circular 570, United States Department of the Treasury or its successor publication, ("Circular 570"). If the city becomes

dissatisfied that the surety is solvent or the surety is no longer included in Circular 570, the permit official may require a bond from a surety listed in Circular 570. Permit applicants who have provided a bond to the city in the amount required by the permit official for a permit pursuant to the requirements of a chapter of the City Code other than this chapter that meets all of the requirements established in this chapter shall not be required to obtain an additional bond but are required to provide a copy of such bond provided that such bond specifically includes coverage for the permit or permits issued pursuant to this chapter. Permittees who have multiple permits issued pursuant to this chapter are required to provide only one current valid bond for all such permits but may be required to provide a copy of the current bond with each application for a permit.

When a government agency is required to obtain a permit, contractors under contract with a government agency shall provide the bond required in this section. No bond is required when all of the grading work performed pursuant to a permit issued under this chapter to a government agency is performed entirely by the employees of that government agency.

(Ord. No. 17516, § 1, 3-19-2011; Ord. No. 17809, § 2, 6-5-2012, 6-11-2012)

18.44.090 Warranty.

Any person issued a permit shall agree warrant and maintain the area described in the permit for a period of two years after the permit is closed by the city pursuant to Section 18.44.220, or until a building permit is issued for the purpose of maintaining a stabilized site in accordance with the approved GSP, whichever first occurs (the "warranty" or "warranty period"). The city may conduct inspections of the permitted area throughout the warranty period and require maintenance and correction of the work by the permit holder. Failure of the permit holder to correct the work shall constitute a failure to comply with the provisions of this chapter.

(Ord. No. 17516, § 1, 3-29-2011)

18.44.100 Permit application, staff review.

When grading is to be performed, the permit official shall review the grading permit application, to confirm that the application is in compliance with this chapter and evaluate any aspect of the proposed work that relates to or affects the zoning or land use, and on the apparent ecological effect of the development. The permit official may also refer applications to other appropriate city agencies for review and comment. In such cases, the staff shall provide such comments within a period of ten city working days. The failure of staff to provide timely comments shall not delay the continued processing of the permit application.

(Ord. No. 17516, § 1, 3-29-2011)

18.44.110 Issuance, denial, suspension or revocation of permit.

A. The grading permit will be issued by the permit official upon verification and approval of the information contained within the permit application; and upon payment of the appropriate permit fees.

B. The permit official may refuse to issue any grading permit whenever the proposed grading is contrary to the provisions of this chapter.

C. A grading permit may be denied for the failure of the applicant to contact a "one call" notification system for the area and to provide a verification number confirming that such a "one call" has been made by the applicant.

D. If any person does any grading or otherwise disturbs the ground cover of any property within the city without a grading permit, he must apply for a grading permit and shall be subject to a double permit fee.

E. Suspension and revocation. The permit official may suspend or revoke a permit for noncompliance with the requirements of this chapter. Suspension may be issued by the permit official for minor violations of the permit that can be corrected within ten calendar days. Failure to correct to the satisfaction of the permit official shall result in a revocation of the permit, provided that

suspension shall not apply to correction of public nuisance and/or hazardous conditions, as regulated in this chapter.
(Ord. No. 17516, § 1, 3-29-2011)

18.44.120 Appeals.

Any permittee aggrieved by the decision of the permit official concerning the issuance, denial, revocation or suspension of a permit may appeal such decision to the appeals officer.
(Ord. No. 17516, § 1, 3-29-2011; Ord. No. 019762, § 6, 7-22-2025)

18.44.130 Period of validity of permits.

All permits, except for borrow and/or waste permits, shall expire within one year of the date of issuance of the permit. Two one-year extensions for completion of work may be granted subject to an established fee for each one-year extension. An application for an extension of the permit shall be submitted to the permit official prior to the expiration of the permit. The permit will become void and a new permit application required after expiration of the then existing term of the permit (1) when no application for an extension is timely submitted and (2) upon the expiration of the second extension. Borrow or waste permits shall expire within six months from the date of issuance of the permit. Upon expiration of the permit, a reapplication for a borrow or waste permit shall be required.
(Ord. No. 17516, § 1, 3-29-2011)

18.44.140 Permit fees.

The application for any permit required by this chapter shall be accompanied by the established fee.
(Ord. No. 17516, § 1, 3-29-2011)

18.44.150 Work hours specified.

Grading shall be permitted during the established construction hours as set forth in Section 18.02.105.20 of this Code. No grading of any kind shall be conducted outside established construction hours or on legal holidays or Sundays unless the property owner or his authorized agent has paid the established fee and obtained an after hours construction/grading permit pursuant to the requirements set forth in Section 18.02.105.20 of this Code.
(Ord. No. 17516, § 1, 3-29-2011; Ord. No. 18003, § 1, 4-30-2013)

18.44.160 Removing hazardous conditions.

A. If the permit official finds that any grading (either completed or in progress) is causing a hazard to persons or property, he may notify the owner and require that the hazard be removed or eliminated as soon as practicable depending upon the degree of urgency associated with the hazard involved. If such action is not completed within the time limit stated within the notice, the permit official may require that reasonable temporary protective measures be provided by the property owner in the interim until a final correction plan is approved by the permit official.

B. If materials are washed or deposited upon city right-of-way, drainage structures/easements/right-of-way, streets, alleys or other public property as a result of improperly controlled grading of higher or adjacent lands, the permit official shall notify the owner to remove such materials and restore the streets, alleys or other public property to their original condition within 24 hours or the time specified on the notice.

C. Regardless of whether or not any person is convicted of a misdemeanor for failure to comply with a notice given under subsection A. or B. of this section, the permit official may, if the owner or any principal named in the permit bond fails to comply with such notice, authorize the work to be done by city forces or by contract. The owner and any other principal named in the surety bond shall pay the city's actual cost for such work. If such work by the city is completed while the grading permit is active or during the warranty period, the surety that issued the permit bond required in this chapter shall be liable for the city's cost of doing the work in the event the principal or principals named in the bond do not make payment to the city.

D. Whenever earthen ramps are required to cross city rights-of-way, written approval must be obtained from the permit official prior to the installation of such ramps.
(Ord. No. 17516, § 1, 3-29-2011)

18.44.170 Responsibilities of the owner.

Under this chapter the owner shall be responsible for:

A. Obtaining a permit if required for any grading. Application for the permit shall be made as provided in this chapter;

B. Obtaining, when required by this chapter, the services of an engineer;

C. All of the legal duties, obligations or liabilities incident to ownership of the property while the work of grading is in progress or after the completion of the work. Neither the issuance of a permit under this chapter nor the compliance with the provisions of this chapter shall relieve any person or owner from any responsibility for damages to persons or property otherwise imposed by law, nor impose any liability upon the city or any official of the city for such damages;

D. Installing the appropriate devices, structures, landscaping and facilities and executing soil stabilization, erosion control, handling of materials and other proper measures in conjunction with any proposed grading so as to fulfill the intent and purpose of this chapter;

E. The continued inspection, maintenance and repair of all retaining walls, drainage facilities, slopes, landscaping, soil stabilization and erosion control measures and any other protective devices located upon his property and constructed pursuant to the permit and maintenance activities specified in the approved grading stabilization plan and the documentation thereof;

F. All testing and costs associated with the quality assurance. The quality assurance shall incorporate testing as recommended by the geotechnical investigation and as required by the permit official to verify that the conditions of the permit and intent and purpose of this chapter have been fulfilled;

G. If a graded site becomes destabilized or destabilization becomes imminent, the owner shall immediately take all necessary steps to control such discharge; and

H. Apply for all applicable permits as required in the El Paso City Code.
(Ord. No. 17516, § 1, 3-29-2011)

18.44.180 Responsibility and authority of the permit official.

The permit official, under the authority of this chapter and pursuant to applicable city ordinances and procedures, shall be responsible for:

A. Reviewing all grading permit applications as submitted under the requirements of Section 18.44.070 and the issuing or denying of grading permits as expeditiously as possible and confirm it meets the requirements of the chapter;

B. Temporary suspension of grading permit due to excessive erosion; engineer to provide corrective action; and collection of costs. The permit official may, during a situation in which, in his opinion, blowing sand or dust or runoff from a site under permit is causing or may cause excessive erosion affecting the health, safety, welfare, or property of resident adjacent to the site, after giving permittee due notice and time to take corrective action and upon permittee's failure to act within a period of time determined by the permit official to be reasonable, suspend the grading permit and cause the implementation of BMPs and/or stabilization measures as determined by the permit official to reduce said nuisance or hazard. The permit holder shall pay such costs to city within ten working days of receipt of an invoice for the costs. If the costs are not paid, then a claim will be made against the permit bond; and

C. On a per project basis, temporary deviations for project phasing under a SmartCode application may be evaluated and approved provided the deviations are not in conflict with the intent of this chapter.
(Ord. No. 17516, § 1, 3-29-2011)

18.44.190 Authority to issue citations.

A. The permit official is authorized to enforce the provisions of this chapter and shall have the power to issue misdemeanor citations to any persons violating the provisions of this chapter.

B. The permit official is authorized to make inspections of any property necessary to enforce the provisions of this chapter. If the owner or person in possession of any property refuses to allow the permit official permission to enter the property, the permit official shall have recourse to every remedy provided by law to secure entry including obtaining the proper judicial warrants. (Ord. No. 17516, § 1, 3-29-2011)

18.44.200 Engineering controls for grading.

The requirement for grading permits may differ due to local conditions of land use, proposed site development, drainage patterns, topography, soil conditions and other items. The requirements in this section have been developed as an aid for operations covered by the grading ordinance. Engineering judgment, experience and competence shall be used to verify applicability of the requirements for the site.

Any deviation from the requirements in this section shall be reviewed by and must receive the approval of the permit official. The permit official shall impose the following requirements as part of the issuance of the grading permit.

A. Grading design requirements:

1. Shall maintain on-site balance of earthwork (within ten percent cut or fill) except where doing so would disturb existing natural drainage paths to be preserved. No materials shall be brought to or taken from the site, unless a borrow or waste permit is obtained.

2. Transporting of processed material from one site shall be allowed to a noncontiguous site when:

a. Both sites are under the same ownership or the permittee has obtained written permission from the owner of such other site not belonging to the permit applicant and is provided with the permit application.

b. The processed material is transported from a site with a grading/waste/borrow permit to a site with a grading/waste/borrow permit unless the other site is outside the city limits.

c. The permit official approves the route for transporting processed material from one site to another, and the acceptable wheel-axle loads.

3. Sites shall be graded and maintained to prevent the erosion of soil and to prevent the accumulation of stagnant water thereon, or within any structure located on the site.

4. Construction, grading, or paving on any site shall not increase the damage potential to upstream, downstream, or adjacent properties or public right-of-way, property and/or facilities.

5. Shall include sediment basins that discharge into city streets or natural drainage paths. Desilting basins shall provide sufficient settlement time for setting of solids in the basin before discharging onto city streets and natural drainage paths. Hydraulic and soil type documentation shall be provided to demonstrate or establish that adequate sedimentation occurs before leaving the sediment basin. Sediment basins shall be designed in accordance with the Drainage Design Manual.

6. No grading operation shall excavate or fill so as to cause falling rocks, soil, or debris in any form to fall, slide, or flow onto adjoining properties.

7. Compaction requirements.

a. The compaction requirements for load bearing fills upon which buildings, structures, streets, alleys or public facilities are to be located shall be determined by an engineer as part of the design for the fill and shall fully meet the requirements of the geotechnical investigation as approved by the permit official.

b. Fills shall be placed and compacted to produce a structurally stabilized slope in accordance with the construction design standards and geotechnical investigation.

8. Slope design requirements. Excavations shall be constructed and/or protected so that they are stable and do not endanger life or property. The provisions of this chapter are not intended to

prevent the use of any alternate method of slope design provided that the alternate is designed by an engineer as determined by the soils investigation report and the permit official finds that the alternate design is equivalent to that prescribed in this chapter.

a. Embankments and slopes supporting occupied buildings, streets and roadways shall have a factor of safety of not less than 1.5.

b. Slopes located above occupied buildings and whose toe is located within twenty feet or half of the embankment height from the exterior walls of any occupied building, whichever controls, shall have a factor of safety of not less than 1.5.

c. All other slopes and embankments shall have a minimum factor of safety of 1.3.

d. Drainage facilities shall be provided to protect slope faces from erosion.

e. Construction of berms and swales on the brow or top of the slope shall provide protection from runoff. Erosion protection shall be provided for the berms that will encounter concentrated flows. Swale inverts may be required to be lined in accordance with flow velocities per the Drainage Design Manual. Swales shall be sloped (minimum one percent for pervious and 0.5 percent for impervious) to lined down drains in order to safely discharge flows. Adequate erosion protection shall be provided at all discharge locations.

f. The slope of cut and fill surfaces shall not be steeper than 3 horizontal to 1 vertical. Permittee must also demonstrate that the slope will not become destabilized and not undergo excessive erosion (vegetation alone will not meet the stabilization requirements and additional measures will be necessary). Soil analysis describing engineering properties and suitability of the existing soils to support the proposed slope must be included in the geotechnical investigation. The permit official may require a flatter slope than 3 horizontal to 1 vertical (3H: 1V) if soils/geologic information submitted shows that flatter slopes are necessary for stability, stabilization measures effectiveness or maintenance.

i. The slope of cut surfaces which are five feet in height or less and are in competent bedrock shall be no steeper than 2H: 1V.

g. Areas adjacent to slopes shall not drain over onto the slope face if the off-site drainage width (measured in the direction of the slope) is greater than thirty feet. For areas greater than thirty feet, a swale or berm shall be provided to ensure the water does not erode the face of the slope in accordance with the GSP.

i. Slopes having a ratio of 3 horizontal to 1 vertical or steeper shall not exceed twenty feet in vertical height, without a five feet horizontal bench being placed mid height of slope and at every twenty feet in vertical height thereafter (the bench shall have a cross slope away from the brow [the top] of the slope). The bench shall be constructed with a swale to collect stormwater. Swale inverts may be required to be lined in accordance with flow velocities per the Drainage Design Manual and to prevent percolation into the slope. Swales shall be sloped (minimum one percent) to lined down drains in order to safely discharge flows. Adequate erosion protection shall be provided at all discharge locations.

ii. Cut slopes shall be blended into the existing terrain to produce a contoured transition from cut face to natural ground.

h. No stormwater storage structure shall be at or adjacent to the top (brow) of a slope. Water harvesting at the top of slope will be considered and approved on a per project basis.

i. Cut and fills shall be set back a minimum of five feet from walls, buildings or structures to allow sufficient access to the top of the slope for maintenance purposes and to assure the stability of the slope and the security of the foundations of the buildings and structures.

j. Subsurface drainage facilities shall be provided where needed to intercept seepage that would affect slope stability, building and structure foundations or create undesirable wetness.

k. Excavations shall not be made close to property lines as to endanger adjoining property without providing support and protection to prevent damage due to erosion, sliding, settlement or falling hazard.

l. Fills.

i. Fill materials shall be free of materials detrimental to the construction of stable fills as required by the geotechnical investigation.

ii. Fills shall not be placed where they will slide or wash onto the property of others nor shall they be placed where they will cause encroachment upon natural drainage paths or other natural drainage ways without providing facilities to assure the capacity of the drainage way as approved by the permit official and in compliance with other state and federal guidelines.

iii. Fills that toe out on natural slopes or grades steeper than three horizontal to one vertical shall not be made.

iv. Fills placed above the top of an existing or proposed surface with a slope steeper than three horizontal to one vertical shall be set back from the top of the slope face at least five feet or as determined by the soils investigation report, unless slopes are stabilized to the top of slope face.

v. Prior to placing fills on existing surfaces (condition before grading), all organic materials, vegetation, noncomplying fill, topsoil and other unsuitable materials shall be removed and the existing surface shall be scarified to a depth of six inches or as directed by the geotechnical investigation, whichever is greater.

vi. Fill slopes shall not be constructed by pushing soil over the top of slope.

vii. Fills used to support the foundations of any building or structure shall comply with the requirements of a geotechnical investigation.

9. Rainwater (precipitation) harvesting. Grading plans may be designed to encourage harvesting and use of rainwater within the project site, to reduce surface runoff discharged from project site.

10. Retaining walls. Retaining walls shall be engineered and shall be faced with stone or constructed with other earth colored material as approved by the permit official. If a series of retaining walls is required, the horizontal distance between walls shall be a minimum of four feet. Retaining walls in excess of four feet in height shall be constructed in accordance with the design prepared by an engineer. The design may require consultation with a geotechnical engineer, shall consider such factors as expansive soils, steep slopes and vehicles or structures near the walls and shall include the following:

a. Construction plans indicating how the proposed wall height will vary along its length.

b. Details with elevations showing top and bottom of wall for critical points along the wall length shall include a profile.

c. Supporting calculations that demonstrate a factor of safety in accordance with the Chapter 18.08.240 for bearing capacity, overturning, sliding, and internal stability, including surcharge loads due to sloping backfill, adjacent vehicles and structures.

11. Pond grading requirements. Pond slopes shall be stabilized per the grading stabilization plan. Slope design requirements will be applicable to the side slopes of the ponds.

12. Any drainage improvements that are installed, as a result of land disturbance activities shall be designed to compliment and blend with the natural topography of the land.

B. Preservation of existing natural drainage paths and terrain: Undeveloped areas in the City of El Paso contain significant natural terrain, drainage paths and vegetation. As a result, special design requirements are necessary to mitigate potential erosion hazards, minimize adverse ecological, physical and visual impacts and conserve natural scenic beauty so as to leave existing conditions undisturbed as much as practicable.

1. Natural drainage paths. The natural drainage paths as provided in the natural drainage path map shall be delineated in the grading plan. It is encouraged that the identified natural drainage paths remain in their natural state, including riparian vegetation, boulders and rock outcroppings. If the proposed grading is within the natural drainage paths, the following design requirements shall apply:

a. Shall meet the requirements of the Drainage Design Manual.

i. All modified existing natural drainage paths shall be designed to achieve a restored natural

appearance. The natural appearance shall be achieved using grading and landscape techniques that replicate a natural drainage path by using natural or earth colored materials native to El Paso, vegetation, boulders and contouring. The design plans shall be in conjunction with the overall landscape theme for a natural drainage path by a landscape architect and be sealed by an engineer. These improvements shall be detailed in the grading plan and GSP.

ii. An erosion/scour analysis must be completed and submitted to the permit official for approval. Water velocity shall be reduced to provide room for floodwater to spread safely and allow for native materials to be used for channel armoring.

iii. A continuous trapezoidal and/or rectangular channel section shall be utilized only if no other hydraulic alternative is feasible.

b. Disturbance for public access trails, roadway crossing and underground utilities required for the development shall be kept to a minimum and must be designed to meet the landscape requirements listed in the preceding section B.1.i.

c. Fences, walls and similar structures shall not be constructed in the undisturbed or modified natural drainage paths.

d. Where drainage structures enter natural drainage paths, the structure must be blended into the natural terrain and lined with natural or earth colored materials, revegetation or other alternative material as approved by the permit official.

e. Natural drainage path fencing is required for all channels with slopes higher than four feet high and slopes steeper than three feet horizontal and one foot vertical shall have fencing of two feet high along the abutting street and four feet high along residential land uses. Fencing shall be masonry, wrought iron, rock, concrete, or combination thereof.

f. Provide a maintenance access route to be determined based on site conditions and to be approved by the permit official. The access route may be a public street when immediately adjacent to the natural drainage path.

g. Existing natural vegetation on the property shall be retained in its natural state, except where necessary for the construction or to replace or improve undesirable vegetation. Areas to remain undisturbed shall be fenced off prior to the use of any heavy machinery on site and shall remain fenced during the entire construction process. Fencing material may include plastic fence or other similar materials. To protect the root zone of said vegetation, fencing shall be placed five feet to the outside of the dripline of such vegetation and shall be a minimum of three feet in height.

h. Revegetation shall be required on all disturbed areas. For purposes of this requirement, appearance shall conform to the overall landscape architect design. The existing top soil (twelve inches) shall be stockpiled and reused in areas where revegetation will occur.

2. Natural terrain. Where grading is proposed on any parcel having an average natural slope of ten percent or greater, grading shall be limited to the minimal amount possible under standard engineering practices. Special requirements shall be considered by the engineer including the intensity of land disturbance and natural characteristics of the terrain, such as steepness of slope, vegetation, landforms, soil type and rock stability.

a. The overall shape, height or grade of any cut or fill slopes shall be developed utilizing contour grading in concert with existing natural contours and the scale of the natural terrain of the site with seamless blending to the natural terrain at the edges of the disturbance.

b. Where two cut or fill slopes intersect and/or intersect the natural grade, the intersection shall be horizontally and vertically contoured and blended to match existing terrain.

c. The area of a site proposed to be graded shall be that which fits into the natural terrain and which allows for a minimal amount of grading. The ungraded area must be left in its natural form for the remainder of the site and native vegetation shall not be removed.

C. Construction activity requirements. The following operational guidelines must be followed during the grading of the site. They are required to be included as "general notes" on the approved grading plan.

1. No on-site processing of material for commercial or retail sales shall be allowed. On-site processing of materials to be used for preparation or construction of improvements within the site covered by the grading permit shall be allowed.

2. Work shall be conducted in a manner that preserves and does not obstruct, impede or interfere with the flow of stormwater in natural drainage ways, unimproved channels or watercourses, or improved ditches, channels or canals in such a manner as to cause flooding where it would not otherwise occur.

3. Construction equipment and fencing shall be kept out of watercourses except when necessary to perform work on the approved plans. Adequate by-bass measures shall be installed where temporary drainage blockages will occur. Where work within a channel is designated on approved plans, precautions shall be taken to stabilize the work area during construction to minimize erosion as shown on the plans. The channel, including bed and banks, shall always be restored/restabilized immediately after work in the channel is completed;

4. Where a drainage way will be crossed by construction vehicles regularly during construction, a temporary crossing shall be constructed as required in the approved grading plans.

5. Material stockpiling shall not be allowed when grading operations are idle for more than seven consecutive calendar days. Stockpiling shall be limited to ten feet high when grading operations are being conducted.

6. A traffic control permit shall be required if the grading operation will impact traffic.

7. Any use of vibratory equipment shall not be allowed, unless approved in writing by the permit official in advance of such use.

8. The permit official must be notified no later than 4:00 pm the day in advance of any grading work. Additional activity requirements/restrictions may be specified by the design engineer of record.

D. Grading stabilization plan design requirements: The applicant shall meet the following requirements in developing the GSP for the stabilization of the site/slopes after the grading operation is complete (post construction) or if the site becomes idle for more than one hundred eighty consecutive calendar days. These requirements are in addition to meeting the requirements of Chapter 15 which govern construction activities and erosion control BMPs. The requirements for soil erosion control measures depend largely upon the extent of the destructive and nuisance potentials due to erosion that may develop from the work to be performed. Thus, the need for erosion control measures is largely determined by prevailing winds, drainage patterns, soils characteristics, residences, businesses, thoroughfares and other facilities. Analysis must be completed to verify and account for drainage patterns, soil characteristics and proximity to downstream development where erosion may occur and/or may cause hazards or damage to public or private property. The following are design guidelines for completing and complying with the GSP.

1. The GSP shall be prepared and designed to meet the following goals:

a. Development plans for any project site shall be as effectively fitted to existing topography and soils as practical so as to create the least erosion potential possible.

b. Sediment caused by excessive erosion shall be removed from runoff water before leaving the site.

c. All disturbed areas, sites and slopes shall be stabilized through the implementation of a stabilization measure to prevent excessive erosion by wind or water.

d. Ensure that the stabilization measures are implemented properly and maintenance activities, both short and long term, are specified to ensure effectiveness of the stabilization measures.

e. Cut and fill slopes shall be stabilized through the implementation of a stabilization measure and surface water damage to cut and fill slopes shall be prevented.

2. Implementation of the GSP shall be applied to disturbed areas and soil stockpiles after the grading operation is complete or at such time the land becomes idle for more than one hundred eighty consecutive calendar days.

3. Scheduling requirements — The maintenance activities shall continue for the warranty period.

a. At any one time in the development of the site, the smallest practical project area should be physically disturbed. Final structures, paving, facilities and effective drainage control measures shall be completed in each project area as soon as possible.

b. Project areas physically disturbed during development shall be exposed to erosion producing influences for the shortest period of time practicable.

c. Critical areas such as slopes of three (horizontal) to one (vertical) or steeper and drainage ways shall be stabilized immediately after the completion of the grading.

d. Permanent storm drainage facilities, paving and other related facilities shall be constructed as soon as practicable to reduce water erosion problems.

e. The GSP must include a description of site work schedule and sequencing, specifically stating whether any portion of the land will remain graded and idle for more than one hundred eighty consecutive calendar days.

4. Erosion control—Waterways. Disturbed areas and slopes must be stabilized using one or more of the following stabilization measures. Stabilization measures are detailed in the design standards for construction:

a. Velocity dissipation devices.

b. Slope drains.

c. Streambank stabilization.

d. Earth dikes and drainage swales.

e. Sediment basin.

f. Check dams.

g. Others as proposed by the applicant and approved by the permit official.

5. Erosion control—Disturbed areas. Disturbed areas and slopes must be stabilized using one or more of the following stabilization measures. Stabilization measures are detailed in the design standards for construction.

a. Wind erosion - After completion of site grading the project area shall be watered as required to control wind erosion.

b. Palliative soil stabilizers (e.g. polyacrylamide, guar-based compounds, polyvinyl acetate, liquid polymers). Detail information for polymers shall include the type of palliative, mix ratio and application rate specific to the soil type, climatic conditions, and stabilization design life. Oil-based palliatives are not allowed.

c. Seeding methods such as hydro seeding, drilling, seeding and raking in, or other seeding method to provide long-term erosion control. Existing top soil shall be stockpiled and reused; soil roughening shall be implemented before seeding. Seed mixtures shall be provided with the GSP. Mixtures shall utilize native and adapted grasses that require no irrigation after the establishment period. Seeding alone is not erosion control until vegetation is established. Seeding shall be combined with applicable erosion control structural stabilization measure until vegetation is established.

d. Bonded fiber matrix. Detail information provided for bonded fiber matrix shall include the type of binder, mix ratio and application rate specific to the soil type, climatic conditions, and stabilization design life.

e. Crimped straw mulch - Use of mulch shall be limited to providing erosion control for six months or less, except when applied with a binding agent or netting to secure the mulch.

f. Geotextiles and mats.

g. Wood mulching.

h. Revegetation/landscaping - Revegetation shall include a weed-free seed mixture or live transplanted plants. Existing topsoil shall be stockpiled and reused in the revegetation areas.

i. Rock cover.

j. Others as proposed by the applicant and approved by the permit official.

6. Each stabilization measure shall be detailed on the plan. The GSP shall include the period of time for which the stabilization measure is intended to be effective and design details to document its ability to perform for that time period. The plan shall list all required maintenance activities and frequency of maintenance. The maintenance requirements must continue for the warranty period to ensure that graded sites are stabilized. Where specified as part of the stabilization measure, temporary irrigation shall be maintained for the time required to ensure vegetation survival.

a. Site monitoring shall be performed by the permittee responsible for the GSP. The city may also monitor the site compliance at any time and require access to the updated site GSP and records of all inspections made.

b. All stabilization measures identified in the GSP shall continue to be maintained. The permittee shall remain in charge of the site during the warranty period.

c. The city shall be notified in writing by the permittee/owner that a portion of the construction site is or will become idle. The permittee responsible for the GSP shall inspect the construction site to verify that the site is adequately protected. The city may conduct an inspection of the site.

d. Additional protection measures may be required by the permit official. Any construction site found idle for more than one hundred eighty consecutive calendar days without the installation of appropriate protection measures and notification that the construction project is idle shall be considered in violation of this chapter.

e. A monitoring and inspection program shall be implemented until a stabilized site is achieved or building resumes. Inactive/idle sites shall be inspected and maintained on one of the following schedules:

i. At least once every fourteen calendar days and within twenty-four hours following a wind event (as determined by the permit official) and/or rainstorm event of 0.5 inches or greater; or

ii. At least once every seven calendar days, on a specifically defined day each week, regardless of whether there has been a rainstorm event since the last inspection.

7. The GSP shall be updated in accordance with the actual construction sequence, and the stabilization measures are implemented according to actual construction progress.
(Ord. No. 17516, § 1, 3-29-2011)

18.44.210 Penalty—Severability.

Any person violating this chapter shall be deemed guilty of a misdemeanor and shall be punished by a fine not to exceed two thousand dollars. in the case of a continuing violation, each day's violation shall be deemed a separate offense. the severability provisions of Section 1.04.060 of this Code apply to this chapter.
(Ord. No. 17516, § 1, 3-29-2011)

18.44.220 Permit closeout procedure.

After the permittee completes the grading under the permit, the permit shall be closed. As part of the closeout procedure, the applicant must submit the following to the city:

A. A statement from the engineer of record that states, "the grading operation has been substantially completed and generally conforms to the approved set of plans". The permittee shall call the permit official to establish the beginning of the warranty period and to notify the permit official that the GSP has been implemented.

B. A copy of the notice of termination filed with the state or dated construction site notice, if applicable, in accordance with Chapter 15.

The city will issue a letter stating general conformance to the permit has been met and that the warranty period requirements will continue to be in effect.
(Ord. No. 17516, § 1, 3-29-2011)

Chapter 18.46

LANDSCAPE*

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***Editor's note—**Ord. No. 18026, § 1, adopted June 4, 2013, amended chapter 18.46 in its entirety to read as herein set out. Former chapter 18.46, §§ 18.46.010—18.46.140, 18.46.200, 18.46.210, 18.46.300—18.46.340, pertained to similar subject matter. See Code Comparative Table and Disposition List for complete derivation.

Article I. General Provisions

18.46.010 Title.

This chapter shall be known as the Landscape Ordinance for the City of El Paso, Texas.
(Ord. No. 18026, § 1, 6-4-2013)

18.46.020 Purpose.

A. The purpose of this chapter is to set forth the minimum requirements for irrigation and landscape for both residential and commercial property development within the corporate limits of the city. The regulations herein are designed to enhance the quality of life, increase property values and aesthetics of the city; while helping to improve air purification, reduce stormwater runoff, noise reduction and heat abatement while conserving energy, water and other natural resources.

B. In addition, landscape designers and property owners are encouraged to design and place landscaping materials in a good, economically viable, and environmentally sensitive manner as to improve the aesthetics of development, construction, and the quality of life for all citizens. This chapter encourages the use of quantifiable, generally recognized, scientific standards and methods as well as local and state regulations and manufacturer's recommendations in evaluating all designs. This chapter shall be used to stimulate creativity and innovation in such designs.

C. This chapter is also designed to prevent soil erosion, reduce the hazards of flooding, enhance the absorption of carbon dioxide and supply of oxygen; reduce the effects of noise, glare, dust and other objectionable activities generated by some land uses; promote the pleasant appearance and character of neighborhoods and high intensity commercial and industrial corridors; provide shade; to cool superheated urban areas, and thus reduce water consumption in cooling units, as well as other energy consumption related to environmental cooling; and facilitate the safe movement of traffic in vehicular use areas.

D. This chapter is also designed to promote water conservation and water efficiency by requir-

ing the planting of water-thrifty plants and other landscape materials. To assist in ensuring adequate supplies of water exist for El Paso's future, it is important that water conservation be promoted in landscape watering policies. Water conservation should be promoted through techniques such as the proper design of landscaped areas and plant selection, education of the public, and the proper use of irrigation of systems.
(Ord. No. 18026, § 1, 6-4-2013)

18.46.030 Rules of construction.

The following rules of construction shall apply:

A. The singular number includes the plural and the plural the singular, unless the context clearly indicates the contrary;

B. Words used in the present tense include the past and future tenses, and the future the present;

C. The word "shall" is always mandatory. The word "may" is permissive.

D. Words and terms not defined herein shall be interpreted in accord with Webster's Third New International Dictionary, Copyright 1986.
(Ord. No. 18026, § 1, 6-4-2013)

18.46.040 Interpretation.

A. The provisions of this chapter shall be interpreted and applied, as the minimum requirements for landscaping and irrigation in the city and shall control over all other landscape requirements in any other ordinance in the El Paso City Code, except Chapter 15.13 (Water Conservation) and Title 21 (Smart Code) of this Code.

B. It is not intended that this chapter shall interfere with, abrogate or annul any restrictive covenants or other agreements between individual parties. When there is a conflict between the requirements of this chapter and any restrictive covenant, agreements or other requirements imposed on the property, the more stringent requirement shall apply.

C. The provisions of this chapter shall be subordinate to the provisions of the El Paso City Code pertaining to traffic and pedestrian traffic.
(Ord. No. 18026, § 1, 6-4-2013)

18.46.050 Definitions.

The following terms as used in this chapter shall be defined as follows:

"Approved irrigator" means a Texas licensed irrigator.

"Approved plant list" means the list of plants and shrubs prepared by the tree board or its successor the board of parks and recreation, and the building official, and on file with the building official, and as may be amended from time to time.

"Automatic controller" means a mechanical, electrical or hybrid solid state timing device, capable of operating valve stations by set days of the week and the length of time of water application.

"Backflow prevention device" means a safety device used to prevent pollution or contamination of the potable water supply due to the reverse flow of water from the irrigation system.

"Berm, earthen" means an earthen mound designed to provide visual interest or screen undesirable views and decrease noise.

"Caliper" means the measurement of the thickness of a tree; the minimum diameter of a tree as measured six inches above the grade for trees under four inches in diameter and twelve inches above grade for trees four inches in diameter and larger. For multiple trunk trees, the diameter shall be based on the caliper of the largest trunk plus half the caliper of the next three largest trunks.

"Deciduous" means a plant that sheds its foliage annually.

"Development—Commercial" means all developments zoned or used for commercial uses as described under Title 20 (Zoning).

"Director" means the city manager or designee.

"Evergreen" means a plant with foliage that persists and remains green year round.

"Finish grade" means the ground elevation in its final and finished state before any landscape is installed.

"Frontage" means the property line where a parcel of land, lot, or site abuts a public right-of-way.

"Frontage landscape buffer area" means the ten foot wide area from the public right-of-way line into the property, along the frontage street.

"Grass". See "turf or turf grass."

"Gross building area" means the total enclosed area of a building exterior dimensions, excluding covered walkways or exterior fire escapes.

"Ground covering" means organic or inorganic material such as mulches and/or gravel used as ground covering.

"Ground cover organic" means low growing plant material, other than turf grasses, installed in such a manner as to provide continuous cover of the ground surface.

"Hardscape" means the use of solid non-organic materials such as rock or stone, concrete, asphalt, brick, or other similar type material.

"Impervious soil" means soil which is extremely dense (cementitious sedimentary soil) through which water will not readily penetrate adding to potential stormwater runoff and consists of a rainfall coefficient of .95 pursuant to the Drainage Design Manual.

"Impervious surfaces" means any surface such as roofing, solid surface plastic materials, solid surface oil-impregnated materials, concrete, asphalt, etc. through which water will not readily penetrate adding to potential stormwater runoff and consists of a rainfall coefficient of 1.0 pursuant to the Drainage Design Manual.

"Landscapable area" means that area of the lot that is required by this chapter to be landscaped, to include the frontage landscape buffer used to meet the landscape requirements specified in this chapter. It does not include the parkway or the parking lot trees.

"Landscaping" means the improvement of a section of ground by contouring the land and planting any combination of living plants, such as trees, shrubs, vines, groundcover or grass, natural features such as rock, stone, bark chips or shavings.

"Median" means the area within the public right-of-way, which separates two opposite directions of traffic.

"Mulch" means organic and/or inorganic material, which is placed, to prevent erosion, lower soil temperature and maintain soil moisture levels.

"Official" means the building official or his designee.

"Palm" means a long-lived plant of the family Palmae having a minimum eight feet unbranched clear trunk crowned by large pinnate or palmate leaves.

"Parking lot" for the purposes of this chapter, "parking lot" means any paved or unpaved area, not including a street or alley right-of-way, containing one or more parking spaces for motor vehicles, designed in accordance with the requirements of Chapter 20.14, and intended as an accommodation for patrons, customers, and employees, either with or without a charge for such accommodation.

"Parking spaces" means those spaces for the parking of any vehicle excluding eighteen-wheel tractors and their trailers.

"Parkway" means that area of street right-of-way between the property line and the curb or, in the absence of a curb, between the property line and the nearest edge of the street paving.

"Permeable surfacing" means materials with a permeable base.

"Plant, native or adapted" means a commercially grown or legally harvested plant material hardy to the natural conditions of the region, which once established is capable of sustaining growth without supplemental watering.

"Plant material" means the required trees and other plants that are required to be installed.

"Pond" means a depression in the soil intended to retain and/or detain both stormwater and all excess irrigation water.

"Project" means a specific development which is subject the requirements as stated herein.

"Shrub" means a woody plant, deciduous or evergreen, generally multi-stemmed with small branches near the ground, and smaller growing than a tree.

"Street oriented building" means the placement of a building on a lot such that its principal

orientation is toward the street and the principal entrance is from the sidewalk. Street oriented buildings prohibit parking in any space between the sidewalk and the building.

"Stormwater" means a buildup of naturally occurring precipitation (water), which falls on any parcel of land (site or watershed) of any given size.

"Structure" for the purposes of this chapter, "structure" means that which is built or constructed, an edifice or building of any kind, with four walls and a roof that encloses the interior space from the outside elements, or other artificially built or constructed work.

"Swale" means a landscape design using raised or depressed earthen channel of any depth or width designed to direct or move water to or from ponds, other swales, channels, arroyos or other drainage conveyance.

"Texas Licensed Irrigator" means a person who sells, designs, offers consultations regarding, installs, maintains, alters, repairs, services or supervises the installation of an irrigation system, including the connection of such system to a private or public, raw or potable water supply system or any water supply, and who is required to be licensed under Title 30, Texas Administrative Code, Chapter 30.

"Tree, buffer" means a deciduous or evergreen tree having a minimum of two inches caliper and ten feet in height which is planted with the frontage landscape buffer area of the property along the street frontage.

"Tree, parking lot" means a deciduous tree having a minimum of two inches caliper and ten feet in height, which is capable of obtaining a minimum canopy, spread of twenty feet at maturity. Branching structure shall be maintained at a minimum height of seven feet above the sidewalk area ground, three feet from the trunk; which is installed and located in a parking lot.

"Tree, project" means a deciduous or evergreen tree having a minimum of two inches caliper and ten feet in height, which is capable of obtaining a minimum canopy spread of twenty feet at maturity that is required based on calculations determined by the provisions of this chapter. Branching structure shall be maintained at a minimum height of seven feet above the sidewalk area ground, three feet from the trunk. Such trees shall be healthy and vigorous at time of planting.

"Tree grate" means a barrier with parallel or crossed bars blocking a passage but allows for tree trunk diameter growth.

"Tree, street" means a deciduous tree growing within the parkway of a street having a minimum of two inches caliper and ten feet in height, except that a street tree shall be three inches caliper and ten feet in height for development along any arterial.

"Tree well" means the basin where the root ball of the tree is planted.

"Turf or turf grass" means a surface layer of soil bound by grass and its roots into a thick mat that requires regular maintenance, mowing and watering.

"Unit of plant material" means one project deciduous or evergreen tree having a minimum caliper size of two inches and a minimum height of ten feet to twelve feet and a minimum of forty-five plants of five-gallon size, which area minimum of eighteen inches in height.

"Unmanned facility" means a structure which does not require a certificate of occupancy and is not occupied by any persons.

"Vehicular loading area" means a paved area designed to accommodate the maneuvering, loading and unloading and parking of commercial vehicles having a length of less than twenty-seven feet.

"Vehicular use area" means any area, excluding public rights-of-way, used for the purpose of driving, maneuvering, parking, storing or display of motor vehicles, boats, trailers, mobile homes and recreational vehicles, including new and used automobile lots, and other parking lot uses.

"Visibility triangle" means the area formed by the intersecting property lines and a diagonal line joining the property lines at the points twenty feet from their intersection on the corner lot at the intersecting corner.

"Water harvesting" means the process of intercepting irrigation or stormwater from a surface such as a roof, parking area or land surface and putting it to beneficial use thereby reducing runoff and making maximum use of irrigation and rain water.

"Weed barrier" means a porous overlay material used beneath mulch materials to reduce the germination and growth of unwanted plant material while allowing the percolation of water.
(Ord. No. 18026, § 1, 6-4-2013)

18.46.060 Application.

A. Except as provided herein, this chapter shall apply to the incorporated area of the City of El Paso, Texas, and to all projects listed below. All projects listed below shall provide landscaping in accordance with the requirements of this chapter, and an underground automatic irrigation system, shall be provided for all required landscapable areas in compliance with the requirements of this chapter, and shall comply with the requirements of 30 Texas Administrative Code, Chapter 344, §§ 344.72—344.77, and as may be amended.

1. The construction or erection of any new development, building, or structure, for which a building permit is required and zoned for a commercial use as defined under Title 20 (Zoning) of this Code.

a. For all sites, except zero lot line street frontage sites, the landscaping required by this chapter may be located anywhere on the parcel, except in the parkway or frontage landscape buffer area.

b. In addition to the required landscapable area, the parkway shall be landscaped per Section 18.46.060 and street trees must be provided as required by Section 18.46.200

c. On zero lot line street frontage lots the landscaping shall be located within and throughout the site.

d. In order to be considered as landscapable area there shall be at least ten feet distance between the walls of buildings. Trees planted in areas less than twenty feet between structures will not be given credit in satisfaction of the landscape requirements.

e. If there is no parkway or the parkway is less than four feet, the street trees shall be relocated within and throughout the parcel.

f. If the required frontage landscape buffer area is on a slope where a retaining wall is required and the planting of trees may disturb the structure of the wall, the buffer trees shall be relocated within and throughout the parcel.

2. The expansion of an existing building or parking lot, regardless of the amount of the increase in size.

a. Landscapable area shall be calculated based on the square footage of the new development or structure at a rate of fifteen percent per square foot. A minimum of one unit of plant material shall be required for every one thousand square feet, or portion thereof, of landscapable area.

b. If the site satisfied the code requirements prior to the enactment of this chapter and is deemed legal nonconforming, and if expanded in use as permitted by Title 20 (Zoning), then, only the additional square footage of expansion of landscapable area shall be required to satisfy the requirements of this chapter at a rate of fifteen percent per square foot.

c. For expansions of an existing building or parking lot where the original development was not required to comply with any landscaping requirements, the landscape requirement for the expansion shall be calculated based on the square footage of the expansion and the required landscaping for the expansion may be placed in the parkway.

3. Parking.

a. Any construction of off-street parking or a new parking lot is required to install one tree per ten parking spaces or portion thereof (within and throughout), whether they are required parking spaces or not. Tractor trailer parking lots require one tree for every ten parking spaces. (See Section 18.46.090). This is in addition to the required landscapable area.

b. Any expansion of an existing parking lot is required to install one tree per ten spaces. The number of trees required shall be based on the calculation of the total of all spaces both new and existing (within and throughout) the site, whether they are required parking spaces or not.

c. No parking space shall be more than one hundred feet from a tree.

d. Parking space maximums under Title 20.14 shall apply to this ordinance and additional trees shall be required, one tree for every five spaces over the maximum parking spaces allowed.

4. Unmanned facilities.

a. Any unmanned facility with a calculated landscapable area requiring one unit of plant material or less may install the plant material and irrigation system, or pay fees in lieu of installation as provided herein.

b. All other unmanned facilities with a calculated landscapable area requiring more than one unit of plant material, may install the plant material and irrigation system, or pay fees in lieu of installation as provided herein.

5. Parkways.

a. Parkway area ground treatment shall include permeable surfacing, not to include raw soil. With the exception of street trees, plant material shall be maintained in the parkway so that it does not exceed three feet. Landscaping of the parkway, including any frontage landscape buffers, shall not count towards the required landscapable area.

b. Parkways shall contain street trees as required by Section 18.46.200.

6. Frontage landscape buffers.

a. Frontage landscaping. The frontage along any street shall consist of a minimum ten foot landscape buffer, except as provided in paragraph c. below. The frontage landscape buffer may be crossed by driveways and pedestrian walkways connecting to adjacent land; however, no parking is permitted within a required frontage landscaping buffer. The frontage area buffer shall also include the entire area within the visibility triangle at the intersection of any roadways. Along freeways or any frontage roads, the frontage landscaping buffer shall be fifteen feet.

b. The frontage landscape buffer shall contain the required plant units based on Section 18.46.090 and the required frontage trees as required by Section 18.46.200. Ground treatment shall include decomposed granite, or other permeable surfacing, not to include raw soil.

c. A building may be located within the required ten foot frontage landscape buffer and any remaining portion within the ten-foot landscape buffer not occupied by [any] of the building shall be landscaped.

d. For shopping centers on properties with a lot depth of less than two hundred feet, the frontage buffer area may be reduced to seven feet on an arterial street. This provision does not apply to the following circumstances:

i. A shopping center where platted lots are further divided by metes and bounds.

ii. A shopping center that is located on more than one lot, whether the lots are platted or divided by metes and bounds.

iii. A shopping center that has detached buildings, whether those buildings are on the same building as the main shopping center building or whether the detached buildings are on separate lots that are platted or divided by metes and bounds.

7. Residential development shall comply with the street trees requirement under Article IV of this chapter.

B. Exemptions. The following projects are exempt from the requirements of this chapter:

1. Building restoration projects for historic structures as defined under Title 20 (Zoning).

2. Projects on land owned by the federal or State of Texas governments.

3. Any existing development, which changes its use from an approved use to any other, approved use within the same zoning category.

4. Expansion of an existing structure or parking lot if the existing landscaping within the devel-

opment would satisfy the requirements of this chapter if the entire development were treated as a new project.

5. Projects which are zoned or used for residential use as defined under Title 20 (Zoning) of this Code; if such residential use single-family, duplex, triplex, quadraplex or condominium, except that street trees are required and cannot be exempted for new development based on Section 18.46.200.

6. Existing buildings or parking lot areas that add a delivery or loading area, ramp or dock, or trailer storage area to an existing asphalt or concrete surface.

7. The addition of a building or buildings on a commercial lot when the additional building or buildings have a combined square footage of less than one thousand two hundred square feet of floor area.

8. Structures built from property line to property line (100% build out) shall only be required street trees as required in this chapter.

(Ord. No. 18026, § 1, 6-4-2013)

Article II. Design Requirements

18.46.070 Landscape plans required.

A. Projects that are subject to the requirements of this Chapter, shall require submission of separate plans for landscaping and irrigation. The landscape plan shall be designed by one of the following: (For irrigation plans, see Section 18.47.080.)

1. A landscape architect who holds a certificate of registration issued pursuant to Texas State Occupations Code Chapter 1052; or

2. An architect registered in the State of Texas; or

3. An engineer licensed in the State of Texas; or

4. A landscape contractor; or

5. A landscape designer; or

6. Any other person permitted under Texas State Occupations Code 1052.003 to design a landscape plan.

B. Landscape plan. The landscape plan shall include the following information:

1. Each plan shall be at a minimum scale of one inch equals forty feet, preferably one inch equals twenty feet. No architectural scaling shall be allowed. Plan size shall be on paper size twenty-four by thirty-six inches.

2. Date, scale, north arrow, project title and project address; and landscape designer with their address, phone number;

3. Name, address and telephone number of the property owner(s) representative;

4. Botanical name and common name, plant tag showing plant type, legend reference, size, height, quantity and location of proposed landscape materials to be used;

5. Landscape calculations, minimum required square footage of the landscapable area, total square footage of the landscapable area, parking provided, vehicular loading area, minimum required quantity of landscape materials, provided quantity of landscape materials;

6. Landscape master plan (long-term) with phasing plan;

7. Location of existing and proposed structures, signs, project trees, plant material, swales, berms, frontage trees, parking lot trees, street trees, and fire hydrants existing at the time of plan submission;

8. Show all curb cuts ingress and egress and distances to plant material; and

9. Show a five-foot clearance at maturity for all landscape material adjacent to any utility box, hydrant, meter or access point.

(Ord. No. 18026, § 1, 6-4-2013)

18.46.080 Required landscapable areas.

A. New commercial development. All new commercial development shall be required to comply with the landscapable area requirements, the parkway landscaping requirements, the frontage landscape buffer requirements and the parking lot tree requirements.

1. The required landscapable area shall be calculated as follows:

a. The square footage of the entire lot(s) on which the project is located, minus the square

footage of the building(s) footprint, multiplied by fifteen percent, shall equal the required landscapable area. For sites not qualifying for the street oriented building reduction in Section 18.46.090 A.3., the required landscaping shall not be less than ten percent of the developed parcel.

b. If required area is 0.5 of a unit of plant material or less, fees in lieu of installation may be paid as provided herein.

c. If required area is 0.51 to 0.99 it must comply by providing one unit of plant material.

d. Required area over 0.99 of a unit shall comply at a rate of one unit of plant material for each thousand square feet of required landscapable area or portion thereof;

e. The number of street trees required shall be one tree per every thirty linear feet of all street frontages, including any easements. The buffer trees are required to be located within the frontage landscape buffer area at every thirty linear feet within the frontage landscape buffer area. A minimum of one street and one buffer tree shall be installed if the property has less than fifty feet of frontage. If street trees are being placed within property along the street frontage based on the requirements of Section 18.46.200, then the required frontage trees may be distributed within and throughout the property.

f. The parkway square footage shall not be included when calculating the required fifteen percent landscapable area.

(Ord. No. 18026, § 1, 6-4-2013; Ord. No. 18676, § 1, 5-2-2017)

18.46.090 Required plants.

A. The following plant materials shall be installed within the required landscapable area as follows:

1. For every one thousand square feet, or portion thereof, of landscapable area, one unit of plant material shall be required. One unit of plant material consists of the following:

a. One project deciduous or evergreen trees having a minimum caliper size of two inches and a minimum height of ten feet to twelve feet;

b. A minimum of forty-five plants of five-gallon size, which are a minimum of eighteen inches in height.

c. For project trees, two one-inch caliper trees at a height of eight feet to twelve feet may be substituted for one two-inch caliper project tree.

d. Substitution of plant materials may be allowed for the preservation or relocation of existing healthy trees and shrubs based on equivalent size and type of plant material and shall be subject to review by the landscape plan reviewer on a case by case basis.

e. Other allowable substitutions are as follows;

i. Ten one-gallon shrubs may be substituted for one five-gallon shrub for up to fifty percent of the required five gallon shrubs.

ii. Five five-gallon shrubs may be substituted for one project tree for up to fifty percent of the required project trees.

iii. One project tree may be substituted for five five-gallon plants.

iv. Two one-inch caliper trees eight feet tall may be substituted for one two-inch caliper tree ten to twelve feet tall for up to fifty percent of the required project trees.

v. There are No substitutions for street, buffer, or canopy trees.

f. Palms may be installed on the property but will only count as three five-gallon plants and may only be substituted for up to fifty percent of the required five gallon plants.

2. Parking lots and vehicular use areas.

a. Shading shall be required for parking lots and vehicular use areas that are located within the project, with ten parking spaces or more shall be provided with at least one parking lot tree for every ten parking spaces.

b. Truck courts and truck-trailer parking lots shall be required to have parking lot trees placed around the perimeter of the parking lot.

c. Parking lot trees may be placed within the parking area or vehicular use area with due consideration for vehicle movement and maneuvering or directly adjacent to the vehicular use area.

d. Parking lot trees shall be located with respect to the location of parking lot light fixtures in such a manner as to not impede the distribution of light throughout the parking lot, unless the lighting is placed in the canopy of the trees.

e. Parking lot trees may be placed in planting areas of thirty-six square feet with no dimension less than four feet.

f. If an approved surface is installed for parking or storage of vehicles but is not striped, a tree shall be planted for every one thousand eight hundred square feet of approved surface. Automobile dealerships maintaining an area to rotate stock will be excluded from this calculation.

3. Street-oriented buildings.

a. In cases where a building is oriented toward the street, the required landscapable area shall be reduced by sixty percent if the building meets the following standards:

i. The building span is seventy percent of the width of the lot at the street; and

ii. The principal entrance is from the sidewalk facing the street; and

iii. No parking is located between the street and the building along any portion of the seventy percent span; and

iv. At least Thirty percent of the building facade is glass.

b. Any side off-street parking abutting the property line shall have the required frontage landscape buffer area and required buffer trees.

4. Designated landscape infill development area.

a. The designated landscape infill development area is shown as Appendix A attached to Ordinance Number 17656. [A copy of Ordinance 17656, Exh. A can be found in the city offices.]

b. For a property within the designated landscape infill development area, the required landscapable area may be reduced up to thirty percent.

c. The property shall comply with all other provisions of this chapter.

5. Plant coverage option. The following plant coverage option may be utilized in lieu of the requirements specified under Section 18.46.090 A.1.

a. Plant material shall be provided on all required landscapable area and will cover at least seventy-five percent of area.

b. Plant material used in the coverage calculation shall be shrubs or ground cover from the required the approved tree and plant list of the City of El Paso. The required coverage shall be fifty percent achieved within two years of the date of planting and seventy percent at maturity. In no instance shall the number of plants provided fall below forty percent of the total required under Section 18.46.090 A.1.

c. In addition to the required plant material, two project deciduous or evergreen trees having a caliper size of two inches and a minimum height of ten feet to twelve feet shall be required for every one thousand square feet, or portion thereof. For project trees, two one inch caliper trees at a height of eight feet to twelve feet may be substituted for a two inch caliper project tree. Project trees shall not be used in the calculation of the coverage area.

d. A required weather-based smart controller shall be required in order to utilize the plant coverage option.

6. Storage facilities.

a. Landscapable area shall be calculated for all storage unit development by the square footage of the entire lot(s) on which the project is located minus the square footage of the building(s) footprint, multiplied by ten percent. The required landscaping shall be placed around the outer perimeter of the parcel. The required landscaping shall not be placed in any area less than thirty-six square feet and with any dimension less than four feet. If the parcel that is being developed abuts a street, the street trees are still required to be placed every thirty feet and they may be counted towards the required tree count for the project. If onsite parking is required then canopy trees shall be required per the requirements of this chapter.

7. Groups—High hazard group (H), storage group (S), and utility (U) occupancy classifications, as defined in the International Building Code, in manufacturing and industrial zoning districts.

a. Landscapable area shall be calculated based on the square footage of the entire lot(s) on which the project is located, minus the square footage of the building(s) footprint multiplied by five percent.

b. The required landscaping shall be placed around the outer perimeter of the primary public building on the site. If the property being developed abuts residential uses a landscape buffer is required along those property lines.

c. The required landscaping shall not be placed in any area less than thirty-six square feet and with any dimension less than four feet.

d. All other provisions pertaining to the parking areas, frontage landscape buffer, and street trees shall comply with the applicable provisions of this Code.

(Ord. No. 18026, § 1, 6-4-2013; Ord. No. 18676, §§ 2, 3, 5-2-2017)

Article III. Standards

18.46.100 Landscape standards.

A. Water harvesting. The landscapable area shall be designed to ensure the most beneficial design for surface collection of water to include swales, parking lot islands, bar ditches, detention or retention ponds and constructed wetlands.

B. Plants. Seventy-five percent of all plants to be used in the landscape design shall be selected from the approved plant list on file and maintained in the department. No artificial plant materials shall be used to satisfy the requirements of this chapter. All plants and trees shall be healthy and vigorous at the time of planting. At least fifty percent of the plants installed shall be plant material of low water, drought-tolerant variety.

C. Turf. Turf shall not be installed on slopes exceeding twenty percent, unless approved by the building official or other designee of the city manager to match existing conditions or surrounding development. Turf grass is specifically prohibited in parkways. Turf shall have an amended soil base of a minimum of six inches.

D. Trees. Trees in pedestrian areas shall be planted and maintained, with the mature branching structure having a minimum of seven feet clearance from ground level within three feet from the trunk. All trees shall be healthy and vigorous. Trees shall be planted in beds with a minimum area of thirty-six square feet of surface area with no interior dimension less than four feet measured at ninety degrees to the interior edges.

E. Shrubs. Shrubs shall be a minimum size of a five-gallon container and a minimum plant height of eighteen inches (except for dwarf species and low growing species). Existing shrubs should be preserved and incorporated into the site landscaping.

F. Organic/inorganic ground covering/permeable paving.

1. Inorganic coverings such as gravel, river rock, shell, recycled glass (polished with rounded edges) and similar materials may be used as a landscape groundcover.

2. Organic ground covering such as organic mulch, wood chips or bark may be used as a landscape ground covering.

3. Nonporous materials shall not be installed under organic or inorganic ground covering.

4. Any weed barrier materials used must allow the percolation of standing water within seventy-two hours.

G. Plant material shall be installed to ensure that at maturity there is a five-foot clearance adjacent to any utility box, fire hydrant, FDC connection, utility meter or access point.

(Ord. No. 18026, § 1, 6-4-2013)

18.46.110 Irrigation standards.

For irrigation standards see 18.47.090.

(Ord. No. 18026, § 1, 6-4-2013)

18.46.120 Installation standards.

Landscape and irrigation systems shall be installed in accordance with the approved plan.

A. Minor modifications may be made to the landscape design (plant materials and irrigation system), by the landscape architect or designer, so long as the changes comply with the minimum standards applicable to this chapter.

B. Minor modifications shall be allowed within the landscape area as long as those changes do not affect the plant size, landscapable area, or required quantity and that the irrigation changes do not affect the hydraulic integrity of the system.

C. Installation shall be completed prior to the building final inspection.

D. Reserved.

E. An individual with a state irrigator, installer [only allowed through December 31, 2009], irrigation technician, master plumber, or journeyman plumber license shall be on the project site during all irrigation installation work to review and inspect all progress and aspects of the installation.

(Ord. No. 18026, § 1, 6-4-2013)

18.46.130 Maintenance standards.

A. Landscaping and irrigation shall be regularly and properly maintained to ensure healthy

and vigorous plant material. The property owner is responsible for regular weeding, mowing of grass, irrigating, fertilizing, pest prevention, pruning, and other maintenance of all plantings as needed. Trees may not be trimmed beyond national nursery standards for any reason.

B. Landscaping which dies shall be replaced by the owner with another living plant that is comparable to the existing plant or plant materials specified in the approved landscape plan as expeditiously as possible, but in any event no later than sixty days after notification from the director. The director may extend this time period up to an additional thirty days due to weather or due to events outside of the control of the property owner. (Ord. No. 18026, § 1, 6-4-2013)

18.46.140 Fees in lieu of installation.

A. When applicable. The following projects may pay fees in lieu of installation of the required landscaping material and irrigation system, and shall not be subject to the requirements of this chapter if such fees are paid in accordance with the following provisions.

1. Unmanned facilities.

2. Manned facilities, if the required landscapable area requires 0.5 of a unit of plant material or less.

B. Fee calculation. Where the city accepts payment of cash in lieu of the installation of landscape material and irrigation system, such payment shall be equivalent to the following:

1. Unmanned facilities.

a. Any unmanned facility with a calculated landscapable area requiring one unit of plant material or less, shall pay fees in the amount of five thousand dollars per site.

b. All other unmanned facilities with a calculated landscapable area requiring more than one unit of plant material, may pay fees based on five thousand dollars per unit of plant material required.

2. Manned facilities. Any manned facility with a calculated landscapable area requiring 0.5 of a unit of plant material or less, may pay fees based on five thousand dollars per unit of plant material required.

C. Form tendered. A cash payment made pursuant to this section shall be tendered in the form of a cashier's check, payable to the City of El Paso. The cashier's check shall be submitted to the director and shall accompany the building permit application.

D. Special fund.

1. Special fund established. The city shall establish a special fund for the deposit of all sums paid in lieu of installation pursuant to this chapter. The city shall account for all sums paid with reference to the individual property involved, and all sums received shall be committed by the city to be dedicated to the installation and planting of landscaping and plant material. In no case shall the funds be used for routine park, landscaping maintenance or other recreational facility maintenance. The fees shall be spent in locations as reasonably close as possible to the project which elected to pay such fees; however, the city shall not be restricted to spending the funds throughout the city so long as visible by the general public and in conformance with the purposes set forth in this chapter.

2. Accountability. The building official or other designee of the city manager shall maintain a written record of all moneys received in lieu of installation, including, at a minimum, the total amount of fees received, the property address generating the fees and the date the fees were received. The building official or other designee of the city manager shall maintain a record of all expenditures incurred from these funds and shall also perform a periodic reconciliation to the general ledger system of the city to ensure accountability of these funds.

3. Return of monies paid. Any monies not used as stated above within one year of payment to the city may be returned to the original individual or group that made payment upon application by said individual or group for a refund. Monies

shall be returned upon refund application after one year unless said monies have been encumbered for use prior to application.
(Ord. No. 18026, § 1, 6-4-2013)

Article IV. Street Tree

18.46.200 Required street trees.

A. Street trees are required on all city streets and arterials based on the requirements of this section. Maintenance and trimming of street trees and replacement of dead trees are the responsibility of the owner of the lot adjacent to or on which the trees are located. Street trees shall be maintained alive and healthy by the property owner of the lot adjacent parkway or on which the tree is located.

B. Street trees shall be selected from the approved tree and plant list of the City of El Paso maintained by the parks and recreation department. The street trees to be installed must be designated as a preferred (x) or allowed (o) medium or large deciduous tree from the approved tree or plant list.
(Ord. No. 18026, § 1, 6-4-2013)

18.46.210 Street tree standards.

A. Street trees shall be installed for commercial development per this chapter when any landscape is required per Chapter 18.46. For new residential development, street trees shall be installed by the property owner prior to the issuance of a certificate of occupancy. The required street trees and irrigation system shall be shown on all building permit applications on the site plan. If the developer elects to install the street trees, then the street trees and irrigation system shall be shown on the subdivision improvement plans and must be installed and completed as part of the subdivision improvements for the subdivision. An underground automatic irrigation system shall be required for new residential development and must comply with the standard specified in this chapter.

B. The spacing for all street trees shall be at thirty feet or less for all streets. Every lot over twenty feet wide shall have at least one street tree.

C. Adequate vertical clearance below the branches must be maintained for pedestrians, cars, and bicyclists. The minimum height to the lowest branch overhanging a sidewalk shall be seven feet; the lowest height overhanging a street shall be fourteen feet.

D. Street trees shall be a minimum of two inches caliper and ten feet in height, except that a street tree shall be a minimum of three inches caliper and ten feet in height for development along any arterial.

E. Street trees shall be placed in the parkway of the street, unless the department of transportation director and the planning official requires different locations of trees based on topography or a uniquely shaped lot.

F. The standard setback of trees located between the curb and the sidewalk shall be based on the following standards:

1. Where more than four feet of space of parkway exists between the back of curb and the sidewalk, street trees shall be planted with their centerline equal distance from the curb and sidewalk.

2. Where three to four feet of space of parkway exists between the back of curb and the sidewalk, street trees shall be planted two feet from tree centerline to back of curb.

3. Where less than three feet of space exists between the back of curb and the sidewalk, street tree placement will vary depending on the space available. A solution shall be selected from the following criteria:

a. The minimum distance between the back of curb and centerline of the tree shall be two feet;

b. The minimum distance between the centerline of the tree and the property-side edge of the sidewalk shall be four feet;

c. If items one and two cannot be met, then street trees shall be planted at least two feet beyond the property-side edge of the sidewalk.

4. Where the sidewalk is at the curb, a solution shall be selected from the following criteria:

a. If the sidewalk is less than six feet wide, the tree shall be planted at least two feet beyond the property-side edge of the sidewalk; or

b. If the sidewalk is six feet wide or wider, street trees shall be planted in cutouts in the sidewalk. The centerline of the tree shall be at least two feet from the back of curb, and at least four feet from the property-side edge of the sidewalk. If the remaining clear sidewalk space between the tree planter and the property-side edge of the sidewalk is less than four feet, a grate shall be used to cover the planting hole. The grate shall be of a size and design approved by the department of transportation. In all cases, the minimum effective clear sidewalk width shall be five feet.

G. On sites where evenly-spaced street trees are not possible due to topography or a uniquely shaped lot, random clustering of street trees may be acceptable, provided that the number of trees planted equals or exceeds the number that would be required if the trees were evenly-spaced. Such arrangement must be approved by the department of transportation director and the planning official.

H. A tree well shall be as deep as the root ball and at least twice as wide as the root ball. The bottom of the tree well should be convex and a minimum of four inches of mulch should be placed on the top of the well.

(Ord. No. 18026, § 1, 6-4-2013)

Article V. Administration

18.46.300 Enforcement.

A. Revocation of permit. Permits may be revoked in accordance with the provisions in Chapter 18.02 of this Code.

B. Citations. Employees authorized by the city manager or his designee, to include but not be limited to the city development director and building official and their designees, and the code enforcement division, are authorized to enforce the provisions of this chapter and shall have the power to issue misdemeanor citations to any persons violating the provisions of this chapter.

(Ord. No. 18026, § 1, 6-4-2013)

18.46.310 Appeals.

A. When the director does not approve a landscape or irrigation plan, or the installation of these improvements, the owner or duly authorized representative may appeal in writing that decision to the appeals officer in accordance with the requirements and procedures of Chapter 2.30 of the City Code. Where topography or the unique characteristics of a particular lot are such that the landscape requirements cannot be met, the director of the city development department or designee may waive up fifteen percent of the parking requirement below the minimum so that the minimum landscape requirement can be met or alternatively the missing landscape percentage can be waived up to fifteen percent of the total square footage required. In cases where the property owner disagrees with the determination of the director of the city development department or other designee of the city manager, the decision may be appealed to the appeals officer in accordance with the requirements and procedures of Chapter 2.30 of the City Code.

(Ord. No. 18026, § 1, 6-4-2013; Ord. No. 019762, § 7, 7-22-2025)

18.46.320 Violations—Penalty.

A. Civil and criminal penalties. The city shall have the power to administer and enforce the provisions of this chapter as may be required by governing law. Any person, firm, corporation or agent who shall violate a provision of this chapter, or fails to comply therewith, or with any of the requirements thereof, or who shall has erected, constructed, altered, installed, demolished or moved any landscaping or irrigation system, or has erected, constructed, altered, repaired, moved or demolished any landscaping or irrigation system, in violation of a detailed statement or drawing submitted and permitted under this chapter, is subject to suit for injunctive relief as well as prosecution for criminal violations. Any violation of a provision in this chapter is declared to be a nuisance.

B. Criminal prosecution. Any person violating any provision of chapter shall, upon conviction, be fined a sum not exceeding two thousand dollars. Each day that a provision of this chapter is violated shall constitute a separate offense.

C. Civil remedies. Nothing in this chapter shall be construed as a waiver of the city's right to bring a civil action to enforce the provisions of this chapter and to seek remedies as allowed by law, including, but not limited to the following:

1. Injunctive relief to prevent specific conduct that violates the ordinance or to require specific conduct that is necessary for compliance with the ordinance; and

2. A civil penalty up to five hundred dollars a day when it is shown that the defendant was actually notified of the provisions of the ordinance and after receiving notice committed acts in violation of the ordinance or failed to take action necessary for compliance with the ordinance; and

3. Other available relief.

(Ord. No. 18026, § 1, 6-4-2013)

18.46.330 Severability.

If any section, subsection, sentence, clause or phrase of this chapter is for any reason held to be unconstitutional, such decision shall not affect the validity of the remaining portions of this chapter.

(Ord. No. 18026, § 1, 6-4-2013)

Chapter 18.47

IRRIGATION SYSTEMS

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18.47.010 Title.

This Chapter shall be known as the Irrigation Ordinance for the City of El Paso, Texas. (Ord. 17041, 12-23-2008)

18.47.020 Definitions.

The following words and terms, when used in this ordinance, have the following meanings, unless the context clearly indicates otherwise.

(1) Backflow prevention—The mechanical prevention of reverse flow, or back siphonage, of nonpotable water from an irrigation system into the potable water source.

(2) Backflow prevention assembly—Any assembly used to prevent backflow into a potable water system. The type of assembly used is based on the existing or potential degree of health hazard and backflow condition.

(3) Completion of irrigation system installation—When the landscape irrigation system has been installed, all minimum standards met, all tests performed, and the irrigator is satisfied that the system is operating correctly.

(4) Consulting—The act of providing advice, guidance, review or recommendations related to landscape irrigation systems.

(5) Cross-connection—An actual or potential connection between a potable water source and an irrigation system that may contain contaminates or pollutants or any source of water that has been treated to a lesser degree in the treatment process.

(6) Design—The act of determining the various elements of a landscape irrigation system that will include, but not be limited to, elements such as collecting site specific information, defining the scope of the project, defining plant watering needs, selecting and laying out emission devices, locating system components, conducting hydraulics calculations, identifying any local regulatory requirements, or scheduling irrigation work at a site. Completion of the various components will result in an irrigation plan.

(7) Design pressure—The pressure that is required for an emission device to operate properly. Design pressure is calculated by adding the operating pressure necessary at an emission device to the total of all pressure losses accumulated from an emission device to the water source.

(8) Emission device—Any device that is contained within an irrigation system and that is used to apply water. Common emission devices in an irrigation system include, but are not limited to, spray and rotary sprinkler heads, and drip irrigation emitters.

(9) Employed—Engaged or hired to provide consulting services or perform any activity relating to the sale, design, installation, maintenance,

alteration, repair, or service to irrigation systems. A person is employed if that person is in an employer-employee relationship as defined by Internal Revenue Code, 26 United States Code Service, §3212(d) based on the behavioral control, financial control, and the type of relationship involved in performing employment related tasks.

(10) Head-to-head spacing—The spacing of spray or rotary heads equal to the manufacturer's published radius of the head.

(11) Health hazard—A cross-connection or potential cross-connection with an irrigation system that involves any substance that may, if introduced into the potable water supply, cause death or illness, spread disease, or have a high probability of causing such effects.

(12) Hydraulics—The science of dynamic and static water; the mathematical computation of determining pressure losses and pressure requirements of an irrigation system.

(13) Inspector—A licensed plumbing inspector, water district operator, other governmental entity, or irrigation inspector who inspects irrigation systems and performs other enforcement duties for a municipality or water district as an employee or as a contractor.

(14) Installer—A person who actually connects an irrigation system to a private or public raw or potable water supply system or any water supply, who is licensed according to Title 30, Texas Administrative Code, Chapter 30 (relating to Occupational Licenses and Registrations).

(15) Irrigation inspector—A person who inspects irrigation systems and performs other enforcement duties for a municipality or water district as an employee or as a contractor and is required to be licensed under Title 30, Texas Administrative Code, Chapter 30 (relating to Occupational Licenses and Registrations).

(16) Irrigation plan—A scaled drawing of a landscape irrigation system which lists required information, the scope of the project, and represents the changes made in the installation of the irrigation system.

(17) Irrigation services—Selling, designing, installing, maintaining, altering, repairing, servicing, permitting, providing consulting services regarding, or connecting an irrigation system to a water supply.

(18) Irrigation system—An assembly of component parts that is permanently installed for the controlled distribution and conservation of water to irrigate any type of landscape vegetation in any location, and/or to reduce dust or control erosion. This term does not include a system that is used on or by an agricultural operation as defined by Texas Agricultural Code, §251.002.

(19) Irrigation technician—A person who works under the supervision of a licensed irrigator to install, maintain, alter, repair, service or supervise installation of an irrigation system, including the connection of such system in or to a private or public, raw or potable water supply system or any water supply, and who is required to be licensed under Title 30, Texas Administrative Code, Chapter 30 (relating to Occupational Licenses and Registrations).

(20) Irrigation zone—A subdivision of an irrigation system with a precipitation rate based on plant material type (such as turf, shrubs, or trees), microclimate factors (such as sun/shade ratio), topographic features (such as slope) and soil conditions (such as sand, loan, clay, or combination) or for hydrological control.

(21) Irrigator—A person who sells, designs, offers consultations regarding, installs, maintains, alters, repairs, services or supervises the installation of an irrigation system, including the connection of such system to a private or public, raw or potable water supply system or any water supply, and who is required to be licensed under Title 30, Texas Administrative Code, Chapter 30.

(22) Irrigator-in-Change—The irrigator responsible for all irrigation work performed by an exempt business owner, including, but not limited to obtaining permits, developing design plans, supervising the work of other irrigators or irrigation technicians, and installing, selling, maintaining, altering, repairing, or servicing a landscape irrigation system.

(23) Landscape irrigation—The science of applying the necessary amount of water to promote or sustain healthy growth of plant material or turf.

(24) License—An occupational license that is issued by the Texas Commission on Environmental Quality under Title 30, Texas Administrative Code, Chapter 30 to an individual that authorizes the individual to engage in an activity that is covered by Title 30, Texas Administrative Code, Chapter 30.

(25) Mainline—A pipe within an irrigation system that delivers water from the water source to the individual zone valves.

(26) Maintenance checklist—A document made available to the irrigation system's owner or owner's representative that contains information regarding the operation and maintenance of the irrigation system, including, but not limited to: checking and repairing the irrigation system, setting the automatic controller, checking the rain or moisture sensor, cleaning filters, pruning grass and plants away from irrigation emitters, using and operating the irrigation system, the precipitation rates of each irrigation zone within the system, any water conservation measures currently in effect from the water purveyor, the name of the water purveyor, a suggested seasonal or monthly watering schedule based on current evaportranspiration data for the geographic region, and the minimum water requirements for the plant material in each zone based on the soil type and plant material where the system is installed.

(27) Major maintenance, alteration, repair, or service—Any activity that involves opening to the atmosphere the irrigation main line at any point prior to the discharge side of any irrigation zone control valve. This includes, but is not limited to, repairing or connecting into a main supply pipe, replacing a zone control valve, or repairing a zone control valve in a manner that opens the system to the atmosphere.

(28) Master valve—A remote control valve located after the backflow prevention device that controls the flow of water to the irrigation system mainline.

(29) Matched precipitation rate—The condition in which all sprinkler heads within an irrigation zone apply water at the same rate.

(30) New installation—An irrigation system installed at a location where one did not previously exist.

(31) Pass-through contract—A written contract between a contractor or builder and a licensed irrigator or exempt business owner to perform part or all of the irrigation services relating to an irrigation system.

(32) Potable water—Water that is suitable for human consumption.

(33) Pressure Vacuum Breaker—An assembly containing an independently operating internally loaded check valve and an independently operating loaded air inlet valve located on the discharge side of the check valve. Also known as a Pressure Vacuum Breaker Back-siphonage Prevention Assembly.

(34) Reclaimed water—Domestic or municipal wastewater which has been treated to a quality suitable for beneficial use, such as landscape irrigation.

(35) Records of landscape irrigation activities—The irrigation plans, contracts, warranty information, invoices, copies of permits, and other documents that relate to the installation, maintenance, alteration, repair, or service of a landscape irrigation system.

(36) Reduced Pressure Principle Backflow Prevention Assembly—An assembly containing two independently acting approved check valves together with a hydraulically operating mechanically independent pressure differential relief valve located between the two check valves and below the first check valve.

(37) Static water pressure—The pressure of water when it is not moving.

(38) Supervision—The on-the-job oversight and direction by a licensed irrigator who is fulfilling his or her professional responsibility to the client and/or employer in compliance with local or state requirements. Also a licensed installer working under the direction of a licensed irrigator or

beginning January 1, 2009, an irrigation technician who is working under the direction of a licensed irrigator to install, maintain, alter, repair or service an irrigation system.

(39) Water conservation—The design, installation, service, and operation of an irrigation system in a manner that prevents the waste of water, promotes the most efficient use of water, and applies the least amount of water that is required to maintain healthy individual plant material or turf, reduce dust, and control erosion.

(40) Zone flow—A measurement, in gallons per minute or gallons per hour, of the actual flow of water through a zone valve, calculated by individually opening each zone valve and obtaining a valid reading after the pressure has stabilized. For design purposes, the zone flow is the total flow of all nozzles in the zone at a specific pressure.

(41) Zone valve—An automatic valve that controls a single zone of a landscape irrigation system.

(Ord. 17041, § 1, 12-23-2008)

18.47.030 Valid License Required.

Any person who connects an irrigation system to the water supply within the city or the city's extraterritorial jurisdiction, commonly referred to as the ETJ, must hold a valid license, as defined by Title 30, Texas Administrative Code, Chapter 30 and required by Chapter 1903 of the Texas Occupations Code, or as defined by Chapter 365, Title 22 of the Texas Administrative Code and required by Chapter 1301 of the Texas Occupations Code.

Exemptions

A property owner is not required to be licensed in accordance with Texas Occupations Code, Title 12, §1903.002(c)(1) if he or she is performing irrigation work in a building or on a premises owned or occupied by the person as the person's home. A home or property owner who installs an irrigation system must meet the standards contained in Title 30, Texas Administrative Code, Chapter 344 regarding spacing, water pressure, spraying water over impervious materials, rain or moisture shut-off devices or other technology, backflow prevention and isolation valves.

(Ord. 17041, § 1, 12-23-2008)

18.47.040 Permit Required.

Any person installing an irrigation system within the territorial limits or extraterritorial jurisdiction of the city is required to obtain a permit from the city. Any plan approved for a permit must be in compliance with the requirements of this chapter.

Exemptions

(1) An irrigation system that is within an onsite sewage disposal system, as defined by Section 366.002, Health and Safety Code; or

(2) An irrigation system used on or by an agricultural operation as defined by Section 251.002, Agriculture Code.

(Ord. 17041, § 1, 12-23-2008)

18.47.050 Backflow Prevention Methods and Devices.

(a) Any irrigation system that is connected to the potable water supply must be connected through a backflow prevention method approved by the Texas Commission on Environmental Quality (TCEQ). The backflow prevention device must be approved by the American Society of Sanitary Engineers; or the Foundation for Cross-Connection Control and Hydraulic Research, University of Southern California; or the International Plumbing Code; or any other laboratory that has equivalent capabilities for both the laboratory and field evaluation of backflow prevention assemblies. The backflow prevention device must be installed in accordance with the laboratory approval standards or if the approval does not include specific installation information, the manufacturer's current published recommendations.

(b) If conditions that present a health hazard exist, one of the following methods must be used to prevent backflow;

(1) Reduced pressure principle backflow prevention assemblies may be used if:

(A) the device is installed at a minimum of 12 inches above ground in a location that will ensure that the assembly will not be submerged; and

(B) drainage is provided for any water that may be discharged through the assembly relief valve.

(2) Pressure vacuum breakers may be used if:

(A) no back-pressure condition will occur; and

(B) the device is installed at a minimum of 12 inches above any downstream piping and the highest downstream opening. Pop-up sprinklers are measured from the retracted position from the top of the sprinkler.

(c) Backflow prevention devices used in applications designated as health hazards must be tested upon installation and annually thereafter.

(d) If an existing irrigation system without a backflow-prevention assembly requires major maintenance, alteration, repair, or service, the system must be connected to the potable water supply through an approved, properly installed backflow prevention method before any major maintenance, alteration, repair, or service is performed.

(e) If an irrigation system is connected to a potable water supply through a pressure vacuum breaker or reduced pressure principle backflow assembly and includes an automatic master valve on the system, the automatic master valve must be installed on the discharge side of the backflow prevention assembly.

(f) The irrigation shall ensure the backflow prevention device is tested by a licensed Backflow Prevention Assembly Tester prior to being placed in service and the test results provided to the local water purveyor and the irrigation system's owner or owner's representative within ten business days of testing of the backflow prevention device.
(Ord. 17041, § 1, 12-23-2008)

18.47.060 Specific Conditions and Cross-Connection Control.

(a) Before any chemical is added to an irrigation system connected to the potable water supply, the irrigation system must be connected through a reduced pressure principle backflow prevention assembly or air gap.

(b) Connection of any additional water source to an irrigation system that is connected to the potable water supply can only be done if the irrigation system is connected to the potable water supply through a reduced-pressure principle backflow prevention assembly or an air gap.

(c) Irrigation system components with chemical additives induced by aspiration, injection, or emission system connected to any potable water supply must be connected through a reduced pressure principle backflow device.

(d) If an irrigation system is designed or installed on a property that is served by an on-site sewage facility, as defined in Title 30, Texas Administrative Code, Chapter 285, then:

(1) all irrigation piping and valves must meet the separation distances from the On-Site Sewage Facilities system as required for a private water line in Title 30, Texas Administrative Code, Section 285.91(10);

(2) any connections using a private or public potable water source that is not the city's potable water system must be connected to the water source through a reduced pressure principle backflow prevention assembly as defined in Title 30, Texas Administrative Code, Section 344.50; and

(3) any water from the irrigation system that is applied to the surface of the area utilized by the On-Site Sewage Facility system must be controlled on a separate irrigation zone or zones so as to allow complete control of any irrigation to that area so that there will not be excess water that would prevent the On-Site Sewage Facilities system from operating effectively.
(Ord. 17041, § 1, 12-23-2008)

18.47.070 Water Conservation.

All irrigation systems shall be designed, installed, maintained, altered, repaired, serviced, and operated in a manner that will promote water conservation as defined in the Definitions section of this ordinance.
(Ord. 17041, § 1, 12-23-2008)

18.47.080 Irrigation plans required.

A. Projects that are subject to the requirements of this chapter, shall require submission of

separate plans for landscaping and irrigation. The irrigation plan shall be designed and sealed by one of the following: (for landscape plans, see Section 18.46.070)

1. An irrigator who holds a license issued by the Texas Commission on Environmental Quality under Chapter 37, Texas Water Code; or

2. An architect registered in the State of Texas, to the extent the architect's acts are incidental to the pursuit of the architect's profession; or

3. An engineer licensed in the State of Texas, to the extent the engineer's acts are incidental to the pursuit of the engineer's profession; or

4. A landscape architect who holds a certificate of registration issued pursuant to State Occupations Code Chapter 1052, to the extent the landscape architect's acts are incidental to the pursuit of the landscape architect's profession.

B. The design professional shall prepare an irrigation plan for each site where a new irrigation system will be installed. A paper copy of the irrigation plan must be on the job site at all times during the installation of the irrigation system. A drawing showing the actual installation of the system is due to each irrigation system owner after all new irrigation system installations. During the installation of the irrigation system, variances from the original plan may be authorized by the design professional if the variance from the plan does not:

1. Diminish the operational integrity of the irrigation system;

2. Violate any requirements of this ordinance; and

3. Go unnoted in red on the irrigation plan.

C. All irrigation plans used for construction must be drawn to scale and must include complete coverage of the area to be irrigated. The plan must include, at a minimum, the following information:

1. The irrigator's seal, signature, and date of signing;

2. All major physical features and the boundaries of the areas to be watered;

3. A North arrow;

4. A legend;

5. The zone flow measurement for each zone;

6. Location and type of each controller;

7. Location, type and size of each:

a. Water source, such as, but not limited to a water meter and point(s) of connection;

b. Backflow prevention device;

c. Water emission device, including, but not limited to, spray heads, rotary sprinkler heads, quick-couplers, bubblers, drip, or micro-sprays;

d. Valve, including but not limited to, zone valves, master valves, and isolation valves;

e. Pressure regulation component; and

f. Main line and lateral piping.

8. The scale used; and

9. The design pressure.

(Ord. No. 17900, § 3, 10-30-2012)

Editor's note—Ord. No. 17900, § 3, adopted October 30, 2012, amended § 18.47.080 in its entirety to read as herein set out. Former § 18.47.080, pertained to irrigation plan design: minimum standards, and derived from Ord. No. 17041, § 1, 12-23-2008.

18.47.090 Irrigation standards.

A. Irrigation systems shall be installed in accordance with the standards and requirements of the irrigation equipment manufacturer, the Texas Commission on Environmental Quality, and the International Plumbing Code, and as may be amended, and all applicable regulations and laws.

B. The source of irrigation water, whether potable or reclaimed, as provided by the City of El Paso water utilities, shall be indicated on the irrigation plans.

C. When using a potable irrigation water source, an approved backflow prevention device shall be installed in accordance with the City of El Paso Plumbing Code.

D. No irrigation design or installation shall require the use of any component, including the water meter, in a way which exceeds the manufacturer's published performance limitations for the component.

E. Spacing.

(1) The maximum spacing between emission devices must not exceed the manufacturer's published radius or spacing of the device(s). The radius or spacing is determined by referring to the

manufacturer's published specifications for a specific emission device at a specific operating pressure.

(2) New irrigation systems shall not utilize above-ground spray emission devices in residential or commercial landscapes that are less than forty-eight inches not including the impervious surfaces in either length or width and which contain impervious pedestrian or vehicular traffic surfaces along two or more perimeters. If pop-up sprays or rotary sprinkler heads are used in a new irrigation system, the sprinkler heads must direct flow away from any adjacent surface and shall not be installed closer than four inches from a hardscape, such as, but not limited to, a building foundation, fence, concrete, asphalt, pavers, or stones set with mortar.

(3) Narrow paved walkways, jogging paths, golf cart paths or other small areas located in cemeteries, parks, golf courses or other public areas may be exempted from this requirement if the runoff drains into a landscaped area.

F. All irrigation systems shall include:

1. An automatic controller with multiple programs, multiple repeat cycle capabilities and a flexible calendar program. Power may be provided by either electricity or solar for all commercial applications, Residential may be powered by battery. Manuel systems shall no longer be approved after January 1, 2012.

2. Spray head type irrigation systems may be used in planting beds when:

i. Plant material spaced less than eighteen inches center to center.

ii. Spray head system are evenly spaced to achieve head to head coverage.

G. Spray heads shall not be used in the following locations:

1. Parkways;

2. Medians;

3. In areas less than ten feet in any dimension; and

4. On slopes exceeding twenty percent.

H. Drip and spray systems shall:

1. Be placed on separate valves;

2. All components on drip systems shall be measured in gallons per hour.

I. Wiring and sleeving:

1. All wire shall be direct burial. Multi-strand shall not be allowed for direct burial;

2. Irrigation piping and wiring installed under any hardscaped areas shall be within sleeving.

J. Storm retention pond areas that are irrigated shall incorporate, in the design, separate valves for the basin and slope areas. A moisture sensor shall be installed in the basin.

K. Flood irrigation water from a water improvement district is not an approved method of irrigation, and shall not satisfy the requirements of this chapter.

L. Water pressure. Emission devices must be installed to operate at the minimum and not above the maximum sprinkler head pressure as published by the manufacturer for the nozzle and head spacing that is used. Methods to achieve the water pressure requirements include, but are not limited to, flow control valves, a pressure regulator, or pressure compensating spray heads.

M. Piping. Piping in irrigation systems must be designed and installed so that the flow of water in the pipe will not exceed a velocity of five feet per second for polyvinyl chloride (PVC) pipe.

N. Irrigation zones. Irrigation systems shall have separate zones based on plant material type, microclimate factors, topographic features, soil conditions, and hydrological requirements.

O. Master valve. When provided, a master valve shall be installed on the discharge side of the backflow prevention device on all new installations.

P. PVC pipe primer solvent. All new irrigation systems that are installed using PVC pipe and fittings shall be primed with a colored primer prior to applying the PVC cement in accordance with the International Plumbing Code (Section 605).

Q. Isolation valve. All new irrigation systems must include an isolation valve between the water meter and the backflow prevention device.

R. Pipe installation standard.

1. If the manufacturer has not published specifications for depth coverage of piping, the piping must be installed to provide minimum depth coverage of six inches of select backfill, between the top of the pipe and the natural grade of the topsoil. All portions of the irrigation system that fail to meet this standard must be noted on the irrigation plan. If the area being irrigated has rock at a depth of six inches or less, select backfill may be mounded over the pipe. Mounding must be noted on the irrigation plan and discussed with the irrigation system owner or owner's representative to address any safety issues.

2. If a utility, man-made structure, or roots create an unavoidable obstacle, which makes the six-inch depth coverage requirement impractical, the piping shall be installed to provide a minimum of two inches of select backfill between the top of the pipe and the natural grade of the topsoil.

3. All trenches and holes created during installation of an irrigation system must be backfilled and compacted to the original grade.

S. Water contained within the piping of an irrigation system is deemed to be non- potable. No drinking or domestic water usage, such as, but not limited to, filling swimming pools or decorative fountains, shall be connected to an irrigation system. If a hose bib (an outdoor water faucet that has hose threads on the spout) is connected to an irrigation system for the purpose of providing supplemental water to an area, the hose bib must be installed using a quick coupler key on a quick coupler installed in a covered purple valve box and the hose bib any hoses connected to the bib must be labeled "non-potable, not safe for drinking." An isolation valve must be installed upstream of a quick coupler connecting a hose bib to an irrigation system.

T. Beginning January 1, 2010, either a licensed irrigator or a licensed irrigation technician shall be on-site at all times while the landscape irrigation system is being installed. When an irrigator is not onsite, the irrigator shall be responsible for ensuring that a licensed irrigation technician is on-site to supervise the installation of the irrigation system.

(Ord. No. 17900, § 4, 10-30-2012)

Editor's note—Ord. No. 17900, § 4, adopted October 30, 2012, amended § 18.47.090 in its entirety to read as herein set out. Former § 18.47.090, pertained to design and installation: minimum requirements, and derived from Ord. No. 17041, § 1, 12-23-2008.

18.47.100 Completion of Irrigation System Installation.

Upon completion of the irrigation system, the irrigator or irrigation technician who provided supervision for the on-site installation shall be required to complete four items:

(1) a final "walk through" with the irrigation system's owner or the owner's representative to explain the operation of the system;

(2) The maintenance checklist on which the irrigator or irrigation technician shall obtain the signature of the irrigation system's owner or owner's representative and shall sign, date, and seal the checklist. If the irrigation system's owner or owner's representative is unwilling or unable to sign the maintenance checklist, the irrigator shall note the time and date of the refusal on the irrigation system's owner or owner's representative's signature line. The irrigation system owner or owner's representative will be given the original maintenance checklist and a duplicate copy of the maintenance checklist shall be maintained by the irrigator. The items on the maintenance checklist shall include but are not limited to:

(A) the manufacturer's manual for the automatic controller, if the system is automatic;

(B) a seasonal (spring, summer, fall, winter) watering schedule based on either current/real time evapotranspiration or monthly historical reference evaportranspiration (historical ET) data, monthly effective rainfall estimates, plant landscape coefficient factors, and site factors;

(C) a list of components, such as the nozzle, or pump filters, and other such components; that require maintenance and the recommended frequency for the service; and

(D) the statement, "This irrigation system has been installed in accordance with all applicable state and local laws, ordinances, rules, regulations or orders. I have tested the system and determined that it has been installed according to the Irrigation Plan and is properly adjusted for the most efficient application of water at this time."

(3) A permanent sticker which contains the irrigator's name, license number, company name, telephone number and the dates of the warranty period shall be affixed to each automatic controller installed by the irrigator or irrigation technician. If the irrigation system is manual, the sticker shall be affixed to the original maintenance checklist. The information contained on the sticker must be printed with waterproof ink and include;

(4) The irrigation plan indicating the actual installation of the system must be provided to the irrigation system's owner or owner representative.
(Ord. 17041, § 1, 12-23-2008)

18.47.110 Maintenance, Alteration, Repair, or Service of Irrigation Systems.

(a) The licensed irrigator is responsible for all work that the irrigator performed during the maintenance, alteration, repair, or service of an irrigation system during the warranty period. The irrigator or business owner is not responsible for the professional negligence of any other irrigator who subsequently conducts any irrigation service on the same irrigation system.

(b) All trenches and holes created during the maintenance, alteration, repair, or service of an irrigation system must be returned to the original grade with compacted select backfill.

(c) Colored PVC pipe primer solvent must be used on all pipes and fittings used in the maintenance, alteration, repair, or service of an irrigation system in accordance with the International Plumbing Code (Section 605).

(d) When maintenance, alteration, repair or service of an irrigation system involves excavation work at the water meter or backflow prevention device, an isolation valve shall be installed, if an isolation valve is not present.
(Ord. 17041, § 1, 12-23-2008)

18.47.120 Reclaimed Water.

Reclaimed water may be utilized in landscape irrigation systems if:

(1) there is no direct contact with edible crops, unless the crop is pasteurized before consumption;

(2) the irrigation system does not spray water across property lines that do not belong to the irrigation system's owner;

(3) the irrigation system is installed using purple components;

(4) the domestic potable water line is connected using an air gap or a reduced pressure principle backflow prevention device, in accordance with Title 30, Texas Administrative Code, Section 290.47(i) (relating to Appendices);

(5) a minimum of an eight inch by eight inch sign, in English and Spanish, is prominently posted on/in the area that is being irrigated, that reads, "RECLAIMED WATER — DO NOT DRINK" and "AGUA DE RECUPERACION — NO BEBER"; and

(6) backflow prevention on the reclaimed water supply line shall be in accordance with the regulations of the city's water provider.

(7) shall be approved by the El Paso Water Utilities before calling for a final inspection.
(Ord. 17041, § 1, 12-23-2008)

18.47.130 Advertisement Requirements.

(a) All vehicles used in the performance of irrigation installation, maintenance, alteration, repair, or service must display the irrigator's license number in the form of "Ll _____" in a contrasting color of block letters at least two inches high, on both sides of the vehicle.

(b) All forms of written and electronic advertisements for irrigation services must display the irrigator's license number in the form of "Ll _____." Any form of advertisement, including business cards, and estimates which displays an entity's or individual's name other than that of the licensed irrigator must also display the name of the licensed irrigator and the licensed

irrigator's license number. Trailers that advertise irrigation services must display the irrigator's license number.

(c) The name, mailing address, and telephone number of the commission must be prominently displayed on a legible sign and displayed in plain view for the purpose of addressing complaints at the permanent structure where irrigation business is primarily conducted and irrigation records are kept.
(Ord. 17041, § 1, 12-23-2008)

18.47.140 Contracts.

(a) All contracts to install an irrigation system must be in writing and signed by each party and must specify the irrigator's name, license number, business address, current business telephone numbers, the date that each party signed the agreement, the total agreed price, and must contain the statement, "Irrigation in Texas is regulated by the Texas Commission on Environmental Quality (TCEQ), MC-178, P.O. Box 13087, Austin, Texas 78711-3087. TCEQ's website is: www.tceq.state.tx.us." All contracts must include the irrigator's seal, signature, and date.

(b) All written estimates, proposals, bids, and invoices relating to the installation or repair of an irrigation system(s) must include the irrigator's name, license number, business address, current business telephone number(s), and the statement: "Irrigation in Texas is regulated by the Texas Commission On Environmental Quality (TCEQ) (MC-178), P.O. Box 13087, Austin, Texas 78711-3087. TCEQ's web site is: www.tceq.state.tx.us."

(c) An individual who agrees by contract to provide irrigation services as defined in Title 30, Texas Administrative Code, Section 344.30 (relating to License Required) shall hold an irrigator license issued under Title 30, Texas Administrative Code, Chapter 30 (relating to Occupational Licenses and Registrations) unless the contract is a pass-through contract as defined in Title 30, Texas Administrative Code, Section 344.1(36) (relating to Definitions). If a pass-through contract includes irrigation services, then the irrigation portion of the contract can only be performed by a licensed irrigator. If an irrigator installs a system pursuant to a pass-through contract, the irrigator shall still be responsible for providing the irrigation system's owner or through contract, the irrigator shall still be responsible for providing the irrigation system's owner or owner's representative a copy of the warranty and all other documents required under this chapter. A pass-through contract must identify by name and license number the irrigator that will perform the work and must provide a mechanism for contacting the irrigator for irrigation system warranty work.

(d) The contract must include the dates that the warranty is valid.
(Ord. 17041, § 1, 12-23-2008)

18.47.150 Warranties for Systems.

(a) On all installations of new irrigation systems, an irrigator shall present the irrigation system's owner or owner's representative with a written warranty covering materials and labor furnished in the new installation of the irrigation system. The irrigator shall be responsible for adhering to terms of the warranty. If the irrigator's warranty is less than the manufacturer's warranty for the system components, then the irrigator shall provide the irrigation system's owner or the owner's representative with applicable information regarding the manufacturer's warranty period. The warranty must include the irrigator's seal, signature, and date. If the warranty is part of an irrigator's contract, a separate warranty document is not required.

(b) An irrigator's written warranty on new irrigation systems must specify the irrigator's name, business address, and business telephone number(s), must contain the signature of the irrigation system's owner or owner's representative confirming receipt of the warranty and must include the statement: "Irrigation in Texas is regulated by the Texas Commission on Environmental Quality (TCEQ), MC-178, P.O. Box 130897, Austin, Texas 78711-3087. TCEQ's website is: www.tceq.state.tx.us."

(c) On all maintenance, alterations, repairs, or service to existing irrigation systems, an irrigator shall present the irrigation system's owner or owner's representative a written document that identifies the materials furnished in the maintenance, alteration, repair, or service. If a warranty is provided, the irrigator shall abide by the terms. The warranty document must include the irrigator's name and business contact information.
(Ord. 17041, § 1, 12-23-2008)

18.47.160 Duties and Responsibilities of City Irrigation Inspectors.

A licensed irrigation inspector shall enforce the ordinance of the city, and shall be responsible for:

(1) verifying that the appropriate permits have been obtained for an irrigation system and that the irrigator and installer or irrigation technician, if applicable, are licensed;

(2) inspecting the irrigation system;

(3) determining that the irrigation system complies with the requirements of this chapter;

(4) determining that the appropriate backflow prevention device was installed, tested, and test results provided to the city;

(5) investigating complaints related to irrigation system installation, maintenance, alteration, repairs, or service of an irrigation system and advertisement of irrigation services; and

(6) maintaining records according to this chapter.
(Ord. 17041, § 1, 12-23-2008)

18.47.170 Items Not Covered By This Ordinance.

Any item not covered by their ordinance and required by law shall be governed by the Texas Occupations Code, the Texas Water Code, Title 30 of the Texas Administrative Code, and any other applicable state statute or Texas Commission on Environmental Quality rule.
(Ord. 17041, § 1, 12-23-2008)

18.47.180 Enforcement.

(a) The city shall have the power to administer and enforce the provisions of this chapter as may be required by governing law. Any person, firm, corporation or agent who shall violate a provision of this Code, or fails to comply therewith, or with any of the requirements thereof, is subject to suit for injunctive relief as well as prosecution for criminal violations. Any violation of the ordinance codified in this chapter is declared to be a nuisance.

(b) Any person violating any provision of chapter shall, upon conviction, be fined a sum not exceeding $2000.00. Each day that a provision of this chapter is violated shall constitute a separate offense. An offense under this chapter is a misdemeanor, punishable by a fine of up to $2000.00.

(c) Nothing in this chapter shall be construed as a waiver of the city's right to bring a civil action to enforce the provisions of this chapter and to seek remedies as allowed by law, including, but not limited to the following: Injunctive relief to prevent specific conduct that violates the ordinance or to require specific conduct that is necessary for compliance with the ordinance; and other available relief.
(Ord. 17041, § 1, 12-23-2008)

Chapter 18.48

RESERVED*

*__Editor's note__—Ord. No. 17390, § 36, adopted August 24, 2010, effective 9-1-2010, repealed chapter 18.48, which pertained to projection booths and derived from Ord. 16985 § 52, 2008; Ord. 13152 § 296, 1997; prior code §§ 6-57—6-59.1.

Chapter 18.50

PROPERTY MAINTENANCE CODE*

Sections:

18.50.010 Short title.

18.50.020 Adoption.

18.50.025 Section 102.7 Applicability.

18.50.026 Section 103 - Code Compliance Agency, amended.

18.50.027 Section 111.2 Closing of vacant structures.

18.50.028 Section 111.2.1 Authority to disconnect service utilities, amended.

18.50.030 Section 202 General Definitions, amended.

18.50.040 Section 301.1 Scope, amended.

18.50.050 Section 302.2 Grading and drainage, amended.

18.50.055 Section 302.3 Sidewalks and Driveways, amended.

18.50.060 Section 302.4 Weeds, amended.

18.50.065 Section 302.8 Motor vehicles, amended.

18.50.070 Section 304.3 Premises identification, amended.

18.50.80 Section 304.14 Insect screens, amended.

18.50.81 Section 308.1 Accumulation of rubbish or garbage, amended.

18.50.82 Section 308.2 Disposal of rubbish, amended.

18.50.83 Section 308.2.1 Rubbish storage facilities, amended.

18.50.84 Section 308.2.2 Refrigerators, amended.

18.50.85 Section 308.3 Disposal of garbage, amended.

18.50.86 Section 308.3.1 Garbage facilities, amended.

18.50.87 Section 308.3.2 Containers, amended.

18.50.090 Section 310 Additional requirements for vacant structures/premises, added.

18.50.100 Section 501.1 Scope, amended.

18.50.120 Section 601.1 Scope, amended.

18.50.121 Section 602.2 Residential occupancies, amended.

18.50.122 Section 602.3 Heat Supply, amended.

18.50.123 Section 602.4 Occupiable work spaces, amended.

18.50.124 Section 602.5 Room temperature measurement, amended.

18.50.130 Section 605.2 Receptacles, added.

18.50.140 Section 605.3 Luminaires, amended.

18.50.150 Section 701.1 Scope, amended.

18.50.160 Appendix A, Boarding Standard, adopted.

18.50.170 Appendix A, Boarding Standard, Section A101.1 General, amended.

18.50.180 Conflicting ordinances.

18.50.010 Short title.

This chapter may be cited as the "Property Maintenance Code."

18.50.020 Adoption.

The book entitled "International Property Maintenance Code," 2021 Edition, a copy of which authenticated by the city clerk is on file in the city clerk's office, is adopted as the Property Maintenance Code of the city, as fully as if copied at length in this chapter, but with the amendments

*__Editor's note__—Ord. No. 019528, § 10, adopted Aug 1, 2023, amended Ch. 18.50 in its entirety to read as set out herein. The former Ch. 18.50, §§ 18.50.010—18.50.180, pertained to similar subject matter and derived from Ord. No. 18517, § 1, adopted May 31, 2016.

set forth in this chapter and Chapter 18.02, the Building and Administrative Code of the City of El Paso.
(Ord. No. 019528, § 1, 8-1-2023)

18.50.025 Section 102.7 Applicability.

102.7 Historic Buildings. Replaced:

The provisions of this code shall be mandatory for existing buildings or premises designated or determined to be of historic value by the Historic Preservation Office.
(Ord. No. 019528, § 1, 8-1-2023)

18.50.026 Section 103 - Code Compliance Agency, amended.

103 Code Compliance Agency. Replaced:

Section 103 Division of Property Maintenance & Zoning with Planning & Inspections Department.
(Ord. No. 019528, § 1, 8-1-2023)

18.50.027 Section 111.2 Closing of vacant structures.

If the structure is vacant and unfit for human habitation and occupancy, and is not in danger of structural collapse, the code official is authorized to post a placard of condemnation on the premises and order the structure closed up within reasonable time specified so as not to be an attractive nuisance. Upon failure of the owner or owner's authorized agent to close up the premises within the time specified in the order, the code official shall cause the premises to be closed and secured through any available public agency or by contract or arrangement by private persons and the cost thereof shall be charged against the real estate upon which the structure is located and shall be a lien upon such real estate and shall be collected by any other legal resource.
(Ord. No. 019528, § 1, 8-1-2023)

18.50.028 Section 111.2.1 Authority to disconnect service utilities, amended.

International Property Maintenance Code, 2021 Edition, Section 111.2.1 Authority to disconnect service utilities, is hereby amended to read as follows:

111.2.1 Authority to disconnect service utilities. Authority to disconnect service utilities shall be identified in accordance with the requirements of Chapter 18.02.111.10 of the City Code.
(Ord. No. 019528, § 1, 8-1-2023)

18.50.030 Section 202 General Definitions, amended.

International Property Maintenance Code, 2021 Edition, Section 202 General Definitions is hereby amended to add the following definitions to read as follows:

BOARD. The Building and Standards Commission for the City of El Paso.

HISTORIC BUILDING.

Item 4. A building, object, site or structure that is forty-five years or older and is determined by the Historic Landmark Commission to be of historical, cultural, architectural or archaeological importance, and where demolition or destruction would constitute a loss to the quality and character of El Paso.

OFFICIAL. The building official or any duly authorized representative or designee of the city manager.

OVERLAY ZONING DISTRICT. A district established by ordinance to prescribe special regulations to be applied to a site in combination with the underlying or base district.

REASONABLE TIME. The term "reasonable time" shall have a meaning of 14 calendar days

STREET FRONTAGE. The length of the elevation or façade of a structure facing a public street or parking area, including main and any secondary public access to the structure. Structures on corner lots will be considered to have two street frontages.

URBAN NUISANCE. A premises or structure that is dilapidated, substandard, or unfit for human habitation and a hazard to the public health, safety and welfare.

STREET FACADE. The elevation of the structure facing or abutting a public street including the main public access or entry to the structure.

VACANT. The term "vacant" shall have the meaning as defined in Chapter 18.40 of this title.

VACANT PREMISES. A structure having vacant or unoccupied floors, suites, and/or tenant spaces
(Ord. No. 019528, § 1, 8-1-2023)

18.50.040 Section 301.1 Scope, amended.

International Property Maintenance Code, 2021 Edition, Section 301.1 Scope is hereby amended to read as follows:

301.1 Scope. The provisions of this chapter shall govern the minimum conditions and the responsibilities of persons for maintenance of structures, equipment and exterior property and shall apply to both vacant and occupied structures and premises.
(Ord. No. 019528, § 1, 8-1-2023)

18.50.050 Section 302.2 Grading and drainage, amended.

International Property Maintenance Code, 2021 Edition, Section 302.2 Grading and Drainage, is hereby amended to read as follows:

302.2 Grading and drainage. All premises shall be graded and/or maintained to prevent the erosion of soil and to prevent the accumulation of stagnant water thereon, or within any structure located thereon.

Exception: Approved retention areas and reservoirs.
(Ord. No. 019528, § 1, 8-1-2023)

18.50.055 Section 302.3 Sidewalks and Driveways, amended.

International Property Maintenance Code, 2021 Edition, Section 302.3 Sidewalks and Driveways, is hereby amended to read as follows:

302.3 Sidewalks and Driveways shall be in accordance with the requirements of Chapter 13.04.050 & 13.12.220 of the City Code for maintenance of sidewalks and driveways
(Ord. No. 019528, § 1, 8-1-2023)

18.50.060 Section 302.4 Weeds, amended.

International Property Maintenance Code, 2021 Edition, Section 302.4 Weeds, is hereby amended to read as follows:

302.4 Weeds, Trash, Rubbish and other Matter. All premises and exterior property shall be maintained free from weeds or plant growth in accordance with Chapter 9.04 of the City Code.
(Ord. No. 019528, § 1, 8-1-2023)

18.50.065 Section 302.8 Motor vehicles, amended.

International Property Maintenance Code, 2021 Edition, Section 302.8 Motor vehicles, is hereby amended to read as follows:

302.8 Motor Vehicles shall be in accordance with the requirements of Chapter 9.08 of the City Code.
(Ord. No. 019528, § 1, 8-1-2023)

18.50.070 Section 304.3 Premises identification, amended.

International Property Maintenance Code, 2021 Edition, Section 304.3 Premises Identification, is hereby amended to read as follows:

304.3 Premises Identified. Premises shall be identified in accordance with the requirements of Chapter 18.08 or 18.10 of the City Code.
(Ord. No. 019528, § 1, 8-1-2023)

18.50.80 Section 304.14 Insect screens, amended.

International Property Maintenance Code, 2021 Edition, Section 304.14 Insect screens, is hereby amended to read as follows:

304.14 Insect Screens. Every door, window and other outside opening required for ventilation of habitable rooms, food preparation areas, food service areas or any areas where products to be included or utilized in food for human consumption are processed, manufactured, packaged or stored, shall be supplied with approved tightly fitting screens of not less than 16 mesh per inch (16 mesh per 25 mm) and every swinging door shall have a self-closing device in good working condition.

Exception: Screens shall not be required where other approved means, such as air curtains or insect repellent fans, are employed.
(Ord. No. 019528, § 1, 8-1-2023)

18.50.81 Section 308.1 Accumulation of rubbish or garbage, amended.

International Property Maintenance Code, 2021 Edition, Section 308.1 Accumulation of rubbish or garbage, is hereby amended to read as follows:

308.1 Accumulation of rubbish or garbage shall be in accordance with the requirements of Chapter 9.04 of the City Code.
(Ord. No. 019528, § 1, 8-1-2023)

18.50.82 Section 308.2 Disposal of rubbish, amended.

International Property Maintenance Code, 2021 Edition, Section 308.2 Disposal of rubbish, is hereby amended to read as follows:

308.2 Disposal of rubbish shall be in accordance with the requirements of Chapter 9.04 of the City Code
(Ord. No. 019528, § 1, 8-1-2023)

18.50.83 Section 308.2.1 Rubbish storage facilities, amended.

International Property Maintenance Code, 2021 Edition, Section 308.2.1 Rubbish storage facilities, is hereby amended to read as follows:

308.2.1 Rubbish storage facilities shall be in accordance with the requirements of Chapter 9.04 of the City Code.
(Ord. No. 019528, § 1, 8-1-2023)

18.50.84 Section 308.2.2 Refrigerators, amended.

International Property Maintenance Code, 2021 Edition, Section 308.2.2 Refrigerators, is hereby amended to read as follows:

308.2.2 Refrigerators shall be in accordance with the requirements of Chapter 10.24.030 of the City Code.
(Ord. No. 019528, § 1, 8-1-2023)

18.50.85 Section 308.3 Disposal of garbage, amended.

International Property Maintenance Code, 2021 Edition, Section 308.3 Disposal of garbage, is hereby amended to read as follows:

308.3 Disposal of garbage shall be in accordance with the requirements of Chapter 9.04 of the City Code.
(Ord. No. 019528, § 1, 8-1-2023)

18.50.86 Section 308.3.1 Garbage facilities, amended.

International Property Maintenance Code, 2021 Edition, Section 308.3.1 Garbage facilities, is hereby amended to read as follows:

308.3.1 Garbage facilities shall be in accordance with the requirements of Chapter 9.04 of the City Code
(Ord. No. 019528, § 1, 8-1-2023)

18.50.87 Section 308.3.2 Containers, amended.

International Property Maintenance Code, 2021 Edition, Section 308.3.2 Containers, is hereby amended to read as follows:

308.3.2 Containers shall be in accordance with the requirements of Chapter 9.04 of the City Code. (Ord. No. 019528, § 1, 8-1-2023)

18.50.090 Section 310 Additional requirements for vacant structures/premises, added.

International Property Maintenance Code, 2021 Edition, Section 310 Additional requirements for vacant structures/premises, is hereby added to read as follows:

310 Additional requirements for vacant structures/premises.

310.1 Street façade/frontage windows and doors. On the street façade/frontage, the exterior surface of any window shall not be covered by any substance or adhesive material sprayed, painted or otherwise applied to the windows. All street façade/frontage windows and doors having cracked, broken or missing glass or glazing material shall be repaired and replaced with glass and glazing material in a manner compatible with the original design of the structure.

Exceptions: The required glazing of street frontage windows and doors may be substituted with artistic panels under the following conditions.

1. The artistic panels and their installation are limited to the first floor, or must present an aesthetically unified façade/frontage design and must comply with the boarding standards represented in the International Property Maintenance Code Appendix A.

2. Artistic panels proposed as an alternate to the glazing requirements on a structure within an overlay district shall be subject to approval by the overlay district administrator.

3. Building owners desiring to install artistic panels on a structure in a historic district must first apply for and receive a certificate of appropriateness prior to installation.

4. Windows on all occupied floors shall be kept in sound condition, good repair and weather tight. All glazing materials shall be maintained free from cracks and holes. Artistic panels shall not be applied to windows or doors on occupied floors. All windows and doors shall be maintained and secured to prevent unauthorized entry.

310.3 Historic Buildings. Any restoration, rehabilitation, maintenance or demolition of a historic building and any building with a historic zoning overlay is subject to the requirements of this chapter and chapter 20.20 of this Code, and whichever being the more restrictive shall govern. (Ord. No. 019528, § 1, 8-1-2023)

18.50.100 Section 501.1 Scope, amended.

International Property Maintenance Code, 2021 Edition, Section 501.1 Scope, is hereby amended to read as follows:

501.1 Scope. The provisions of this chapter shall govern the minimum plumbing systems, facilities and plumbing fixtures to be provided for both vacant and occupied structures and premises.
(Ord. No. 019528, § 1, 8-1-2023)

18.50.120 Section 601.1 Scope, amended.

International Property Maintenance Code, 2021 Edition, Section 601.1 Scope, is hereby amended to read as follows:

601.1 Scope. The provisions of this chapter shall govern the minimum mechanical and electrical facilities and equipment to be provided for both vacant and occupied structures and premises.
(Ord. No. 019528, § 1, 8-1-2023)

18.50.121 Section 602.2 Residential occupancies, amended.

International Property Maintenance Code, 2021 Edition, Section 602.2 Residential occupancies, is hereby amended to read as follows:

602.2 Residential occupancies shall be identified in accordance with the requirements of Chapter 18.10.060-Section R303.9 Required heating of the City Code.

(Ord. No. 019528, § 1, 8-1-2023)

18.50.122 Section 602.3 Heat Supply, amended.

International Property Maintenance Code, 2021 Edition, Section 602.3 Heat Supply, is hereby amended to read as follows: **602.3** Heat Supply shall be in accordance with the requirements of Chapter 18.10.060 and 18.08.170 of the City Code.

(Ord. No. 019528, § 1, 8-1-2023)

18.50.123 Section 602.4 Occupiable work spaces, amended.

International Property Maintenance Code, 2021 Edition, Section 602.4 Occupiable work spaces, is hereby amended to read as follows: **602.4** Occupiable work spaces shall be in accordance with the requirements of Chapter 18.08.170 of the City Code.

(Ord. No. 019528, § 1, 8-1-2023)

18.50.124 Section 602.5 Room temperature measurement, amended.

International Property Maintenance Code, 2021 Edition, Section 602.5 Room temperature measurement, is hereby amended to read as follows: **602.5** Room temperature measurement shall be identified in accordance with the requirements of Chapter 18.10.060 and 18.08.170 of the City Code

(Ord. No. 019528, § 1, 8-1-2023)

18.50.130 Section 605.2 Receptacles, added.

International Property Maintenance Code, 2021 Edition, Section 605.2 Receptacles, is hereby amended to read as follows:

605.2 Receptacles. Added.

Every new countertop outlet within five feet of the flood rim of the kitchen sink shall be a ground fault circuit interrupter receptacle.

(Ord. No. 019528, § 1, 8-1-2023)

18.50.140 Section 605.3 Luminaires, amended.

International Property Maintenance Code, 2021 Edition, Section 605.3 Luminaires, is hereby amended to read as follows:

605.3 Lighting Fixtures. Every public hall, interior stairway, toilet room, kitchen, bathroom, laundry room, boiler room, furnace room, attached garage, and detached garage with electric power shall be provided with at least one wall switch controlled ceiling or wall type light fixture. Pool and spa luminaires over 15 volt shall have ground fault circuit interrupter protection.

(Ord. No. 019528, § 1, 8-1-2023)

18.50.150 Section 701.1 Scope, amended.

International Property Maintenance Code, 2021 Edition, Section 701.1 Scope, is hereby amended to read as follows:

701.1 Scope. The provisions of this chapter shall govern the minimum conditions and standards for fire safety relating to structures and exterior premises, including fire safety facilities and equipment to be provided, for both vacant and occupied structures and premises.

(Ord. No. 019528, § 1, 8-1-2023)

18.50.160 Appendix A, Boarding Standard, adopted.

International Property Maintenance Code, 2021 Edition, Appendix A, Boarding Standard, is hereby adopted in its entirety.

(Ord. No. 019528, § 1, 8-1-2023)

18.50.170 Appendix A, Boarding Standard, Section A101.1 General, amended.

International Property Maintenance Code, 2021 Edition, Appendix A, Boarding Standard, Section A101.1 General, is hereby amended to read as follows:

A101.1 General. Except as otherwise required by this chapter, all windows and doors shall be

boarded in an approved manner to prevent entry by unauthorized persons and shall be painted to correspond to the color of the existing structure.
(Ord. No. 019528, § 1, 8-1-2023)

18.50.180 Conflicting ordinances.

All ordinances and parts of ordinances in conflict with the provisions of this chapter are hereby repealed.
(Ord. No. 019528, § 1, 8-1-2023)

Chapter 18.60

FLOOD DAMAGE PREVENTION*

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***Editor's note**—Ord. No. 019528, § 11, adopted Aug 1, 2023, amended Ch. 18.60 in its entirety to read as set out herein. The former Ch. 18.60, §§ 18.60.010—18.60.240, pertained to similar subject matter and derived from Ord. 16356 § 1 (part), adopted 2006;Ord. 16985 § 54, adopted 2008;Ord. No. 17390, §§ 37—40, adopted Aug. 24, 2010, effective Sept. 1, 2010; Ord. No. 18681, § 1, adopted May 16, 2017; Ord. No. 19079, § 2, adopted Aug. 4, 2020.

Article I. Statutory Authorization—Findings of Fact—Purpose—Methods

18.60.010 Statutory authorization.

The Legislature of the State of Texas has, in the Flood Control and Insurance Act (V.T.C.A., Water Code Art. 16.311), delegated the responsibility to local governmental units to adopt regulations designed to minimize flood losses. Therefore, the city council of the city does adopt this chapter. (Ord. No. 019528, § 1, 8-1-2023)

18.60.020 Findings of fact.

A. The flood hazard areas of El Paso are subject to periodic inundation which results in loss of life and property, health and safety hazards, disruption of commerce and governmental services, and extraordinary public expenditures for flood protection and relief, all of which adversely affect the public health, safety and general welfare.

B. These flood losses are created by the cumulative effect of obstructions in floodplains which cause an increase in flood heights and velocities, and by the occupancy of flood hazard areas by uses vulnerable to floods and hazardous to other

lands because they are inadequately elevated, floodproofed or otherwise protected from flood damage.
(Ord. No. 019528, § 1, 8-1-2023)

18.60.030 Statement of purpose.

It is the purpose of this chapter to promote the public health, safety and general welfare and to minimize public and private losses due to flood conditions in specific areas by provisions designed to:

A. Protect human life and health;

B. Minimize expenditure of public money for costly flood control projects;

C. Minimize the need for rescue and relief efforts associated with flooding and generally undertaken at the expense of the general public;

D. Minimize damage to public facilities and utilities such as water and gas mains, electric, telephone and sewer lines, streets and bridges located in floodplains;

E. Help provide information regarding flood-prone areas to the public.
(Ord. No. 019528, § 1, 8-1-2023)

18.60.040 Methods of reducing flood losses.

In order to accomplish its purposes, this chapter uses the following methods:

A. Restrict or prohibit uses that are dangerous to health, safety or property in times of flood, or cause excessive increases in flood heights or velocities;

B. Require that uses vulnerable to floods, including facilities which serve such uses, be protected against flood damage at the time of initial construction;

C. Control the alteration of natural floodplains, stream channels, and natural protective barriers which are involved in the accommodation of floodwaters;

D. Control filling, grading, dredging and other development which may increase flood damage;

E. Prevent or regulate the construction of flood barriers which will unnaturally divert floodwaters or which may increase flood hazards to other lands.
(Ord. No. 019528, § 1, 8-1-2023)

Article II. Definitions

18.60.050 Generally.

Unless specifically defined below, words or phrases used in this chapter shall be interpreted to give them the meaning they have in common usage and to give this chapter its most reasonable application.
(Ord. No. 019528, § 1, 8-1-2023)

18.60.060 Flood control definitions.

As used in this chapter:

"Alluvial fan flooding" means flooding occurring on the surface of an alluvial fan or similar landform which originates at the apex and is characterized by high-velocity flows; active processes of erosion, sediment transport, and deposition and unpredictable flow paths.

"Apex" means a point on an alluvial fan or similar landform below which the flow path of the major stream that formed the fan becomes unpredictable and alluvial fan flooding can occur.

"Appeal" means a request for a review of the floodplain administrator's interpretation of any provisions of this chapter or a request for a variance in improved and unimproved real estate, including but not limited to buildings or other structures, mining, dredging, filling, grading, paving, excavation or drilling operations.

"Appurtenant structure" means a structure which is on the same parcel of property as the principal structure to be insured and the use of which is incidental to the use of the principal structure.

"Area of future conditions flood hazard" means the land area that would be inundated by the one-percent-annual chance (one hundred year) flood based on future conditions hydrology.

"Area of shallow flooding" means a designated AO, AH, AR/AO, AR/AH, or VO zone on a community's Flood Insurance Rate Map (FIRM) with a one percent or greater annual chance of flooding to an average depth of one to three feet where a clearly defined channel does not exist, where the path of flooding is unpredictable and where velocity flow may be evident. Such flooding is characterized by ponding or sheet flow.

"Area of special flood hazard" means the land in the floodplain within a community subject to a one percent or greater chance of flooding in any given year. The area may be designated as Zone A on the Flood Hazard Boundary Map (FHBM). After detailed rate making has been completed in preparation for publication of the FIRM, Zone A usually is refined into Zones A, AO, AH, A1-30, AE, A99, AR, AR/A1-30, AR/AE, AR/AO, AR/AH, AR/A, VO, V1-30, VE or V.

"Base flood" means the flood having a one-percent chance of being equaled or exceeded in any given year.

"Base flood elevation (BFE)" means the computed elevation to which floodwater is anticipated to rise during the base flood. Base flood elevations (BFEs) are shown on flood insurance rate maps (FIRMs) and on flood profile.

"Basement" means any area of the building having its floor subgrade (below ground level) on all sides.

"Breakaway wall" means a wall that is not part of the structural support of the building and is intended through its design and construction to collapse under specific lateral loading forces, without causing damage to the elevated portion of the building or supporting foundation system.

"Critical feature" means an integral and readily identifiable part of a flood protection system, without which the flood protection provided by the entire system would be compromised.

"Development" means any manmade change to improved or unimproved real estate, including but not limited to buildings or other structures, mining, dredging, filling, grading, paving, excavation or drilling operations or storage of equipment or materials.

"Elevated building" means, for insurance purposes, a non-basement building, which has its lowest elevated floor, raised aboveground level by foundation walls, shear walls, posts, piers, pilings or columns.

"Existing construction" means for the purposes of determining rates, structures for which the "start of construction" commenced before the effective date of the FIRM or before January 1, 1975, for FIRMs effective before that date. "Existing construction" may also be referred to as "existing structures."

"Existing manufacture home park or subdivision" means a manufactured home park or subdivision for which the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including, at a minimum, the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads) is completed before the effective date of the floodplain management regulations adopted by a community.

"Expansion to an existing manufactured home park or subdivision" means the preparation of additional sites by the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads).

"Flood" or "flooding" means a general and temporary condition of partial or complete inundation of normally dry land areas from:

1. The overflow of inland or tidal waters;

2. The unusual and rapid accumulation or runoff of surface waters from any source.

"Flood elevation study" means an examination, evaluation and determination of flood hazards and, if appropriate, corresponding water surface elevations, or an examination, evaluation and determination of mudslide (i.e., mudflow) and/or flood-related erosion hazards.

"Flood Insurance Rate Map (FIRM)" means an official map of a community, on which the Federal Emergency Management Agency has delineated both the areas of special flood hazards and the risk premium zones applicable to the community.

"Flood Insurance Study (FIS)" see "Flood elevation study" as the definition.

"Floodplain" or "flood-prone area" means any land area susceptible to being inundated by water from any source (see definition of flooding).

"Floodplain management" means the operation of an overall program of corrective and preventive measures for reducing flood damage, including but not limited to emergency preparedness plans, flood control works and floodplain management regulations.

"Floodplain management regulations" means zoning ordinances, subdivision regulations, building codes, health regulations, special purpose ordinances (such as a floodplain ordinance, grading ordinance and erosion control ordinance) and other applications of police power. The term describes such state or local regulations, in any combination thereof, which provide standards for the purpose of flood damage prevention and reduction.

"Floodproofing" means any combination of structural and nonstructural additions, changes, or adjustments to structures which reduce or eliminate flood damage to real estate or improved real property, water and sanitary facilities, structures and their contents.

"Flood protection system" means those physical structural works for which funds have been authorized, appropriated, and expended and for which improvements have been constructed specifically to modify flooding in order to reduce the extent of the areas within a community subject to a "special flood hazard" and the extent of the depths of associated flooding. Such a system typically includes hurricane tidal barriers, dams, reservoirs, levees or dikes. These specialized flood modifying works are those constructed in conformance with sound engineering standards.

"Floodway (regulatory floodway)" means the channel of a river or other watercourse and the adjacent land areas that must be reserved in order to discharge the base flood without cumulatively increasing the water surface elevation more than a designated height.

"Floodway" see "Regulatory floodway."

"Functionally dependent use" means a use which cannot perform its intended purpose unless it is located or carried out in close proximity to water. The term includes only docking facilities, port facilities that are necessary for the loading and unloading of cargo or passengers, and ship building and ship repair facilities, but does not include long-term storage or related manufacturing facilities.

"Habitable floor" means any floor usable for the following purposes which include working, sleeping, eating, cooking or recreation, or a combination thereof. A floor used for storage purposes only is not a "habitable floor."

"Highest adjacent grade" means the highest, natural elevation of the ground surface prior to construction next to the proposed walls of a structure.

"Historic structure" means any structure that is:

1. Listed individually in the national register of historic places (a listing maintained by the Department of Interior) or preliminarily determined by the Secretary of the Interior as meeting the requirements for individual listing on the national register;

2. Certified or preliminarily determined by the Secretary of the Interior as contributing to the historical significance of a registered historic district or a district preliminarily determined by the secretary to qualify as a registered historic district;

3. Individually listed on a state inventory of historic places in states with historic preservation programs which have been approved by the Secretary of the Interior; or

4. Individually listed on a local inventory or historic places in communities with historic preservation programs that have been certified either:

a. By an approved state program as determined by the Secretary of the Interior, or

b. Directly by the Secretary of the Interior in states without approved programs.

"Levee" means a manmade structure, usually an earthen embankment, designed and constructed in accordance with sound engineering practices to contain, control or divert the flow of water so as to provide protection from temporary flooding.

"Levee system" means a flood protection system which consists of a levee, or levees, and associated structures, such as closure and drainage devices, which are constructed and operated in accordance with sound engineering practices.

"Lowest floor" means the lowest floor of the lowest enclosed area (including basement). An unfinished or flood-resistant enclosure, usable solely for parking of vehicles, building access or storage in an area other than a basement area is not considered a building's lowest floor; provided that such enclosure is not built so as to render the structure in violation of the applicable non-elevation design requirement of Section 60.3 of the National Flood Insurance Program regulations.

"Manufactured home" means a structure transportable in one or more sections, which is built on a permanent chassis and is designed for use with or without a permanent foundation when connected to the required utilities. For floodplain management purposes the term "manufactured home" also includes park trailers, travel trailers, and other similar vehicles placed on a site for greater than one hundred eighty consecutive days. For insurance purposes the term "manufactured home" does not include park trailers, travel trailers and other similar vehicles.

"Manufactured home park or subdivision" means a parcel (or contiguous parcels) of land divided into two or more manufactured home lots for rent or sale.

"Mean sea level" means for purposes of the National Flood Insurance Program, the National Geodetic Vertical Datum (NGVD) of 1929 or other datum, to which base flood elevations shown on a community's Flood Insurance Rate Map are referenced.

"New construction" means, for the purposes of determining insurance rates, structures for which the "start of construction" commenced on or after the effective date of an initial FIRM or after December 31, 1974, whichever is later, and includes any subsequent improvements to such structures. For floodplain management purposes, new construction means structures for which the start of construction commenced on or after the effective date of floodplain management regulation adopted by community and includes any subsequent improvements to such structures.

"New manufactured home park or subdivision" means a manufactured home park or subdivision or which the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including at a minimum, the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads) is completed on or after the effective date of floodplain management regulations adopted by a community.

"Recreational vehicle" means a vehicle which is (i) built on a single chassis; (ii) four hundred square feet or less when measured at the largest horizontal projections; (iii) designed to be self-propelled or permanently towable by a light duty truck; and (iv) designed primarily not for use as a permanent dwelling but as temporary living quarters for recreational, camping, travel, or seasonal use.

"Regulatory floodway" means the channel of a river or other watercourse and the adjacent land areas that must be reserved in order to discharge the base flood without cumulatively increasing the water surface elevation more than a designated height.

"Riverine" means relating to, formed by, or resembling a river (including tributaries), stream, brook, etc.

"Special flood hazard area" see "Area of special flood hazard."

"Start of construction," (for other than new construction or substantial improvements under the Coastal Barrier Resources Act [Pub. L. 97-

348]), includes substantial improvement and means the date the building permit was issued, provided the actual start of construction, repair, reconstruction, rehabilitation, additional placement, or other improvement was within one hundred eighty days of the permit date. The actual start means either the first placement of permanent construction of a structure on a site, such as the pouring of slab or footings, the installation of piles, the construction of columns, or any work beyond the stage of excavation; or the placement of a manufactured home on a foundation. Permanent construction does not include land preparation, such as clearing, grading and filling; nor does it include the installation of streets and/or walkways; nor does it include excavation for basement, footings, piers or foundations or the erection of temporary forms; nor does it include the installation on the property of accessory buildings, such as garages or sheds not occupied as dwelling units or not part of the main structure. For a substantial improvement, the actual start of construction means the first alteration of any wall, ceiling, floor, or other structural part of a building, whether or not that alteration affects the external dimensions of building.

"Structure" means, for floodplain management purposes, a walled and roofed building including a gas or liquid storage tank, that is principally above ground, as well as a manufactured home.

"Substantial damage" means damage of any origin sustained by a structure whereby the cost of restoring the structure to its before damaged condition would equal or exceed fifty percent of the market value of the structure before the damage occurred.

"Substantial improvement" means any reconstruction, rehabilitation, addition, or other improvement of a structure, the cost of which equals or exceeds fifty percent of the market value of the structure before "start of construction" of the improvement. This term includes structures, which have incurred "substantial damage," regardless of the actual repair work performed. The term does not, however, include either: (1) any project for improvement of a structure to correct existing violations of state or local health, sanitary, or safety code specifications which have been identified by the local code enforcement official and which are the minimum necessary to assure safe living conditions; or (2) any alteration of a "historic structure," provided that the alteration will not preclude the structure's continued designation as a "historic structure."

"Variance" means a grant of relief by a community from the terms of a floodplain management regulation. (For full requirements see Section 60.6 of the National Flood Insurance Program regulations.)

"Violation" means the failure of a structure or other development to be fully compliant with the community's floodplain management regulations. A structure or other development without the elevation certificate, other certifications, or other evidence of compliance required in Section 60.3(b)(5), (c)(4), (c)(10), (d)(3), (e)(2), (e)(4), or (e)(5) of the National Flood Insurance Program regulations is presumed to be in violation until such time as that documentation is provided.

"Water surface elevation" means the height, in relation to the National Geodetic Vertical Datum (NGVD) of 1929 (or other datum, where specified), of floods of various magnitudes and frequencies in the floodplains of coastal or riverine areas. (Ord. No. 019528, § 1, 8-1-2023)

Article III. General Provisions

18.60.070 Lands to which this chapter applies.

This chapter shall apply to all areas of special flood hazard within the jurisdiction of the city. (Ord. No. 019528, § 1, 8-1-2023)

18.60.080 Basis for establishing the areas of special flood hazard.

The areas of special flood hazard identified by the Federal Emergency Management Agency (FEMA) in a scientific and engineering report, entitled "The Flood Insurance Study for the City of El Paso," (FIS), with accompanying Flood In-

surance Rate Maps and Flood Boundary-Floodway Maps (FIRM and FBFM) utilizing the most current effective documents and any revisions thereto, are adopted by reference and declared to be a part of this chapter.
(Ord. No. 019528, § 1, 8-1-2023)

18.60.090 Establishment of development permit.

Development permits shall be used to ensure conformance with the provisions of this chapter.
(Ord. No. 019528, § 1, 8-1-2023)

18.60.100 Compliance.

No structure or land shall hereafter be located, altered, or have its use changed without full compliance with the terms of this chapter and other applicable regulations.
(Ord. No. 019528, § 1, 8-1-2023)

18.60.110 Abrogation and greater restrictions.

This chapter is not intended to repeal, abrogate or impair any existing easements, covenants or deed restrictions. However, where this chapter and another conflict or overlap, whichever imposes the more stringent restrictions shall prevail.
(Ord. No. 019528, § 1, 8-1-2023)

18.60.120 Interpretation.

In the interpretation and application of this chapter, all provisions shall be (1) considered as minimum requirements; (2) liberally construed in favor of the governing body; and (3) deemed neither to limit nor repeal any other powers granted under state statutes.
(Ord. No. 019528, § 1, 8-1-2023)

18.60.130 Warning and disclaimer of liability.

The degree of flood protection required by this chapter is considered reasonable for regulatory purposes and is based on scientific and engineering considerations. On rare occasions, greater floods can and will occur and flood heights may be increased by manmade or natural causes. This chapter does not imply that land outside the areas of special flood hazard or uses permitted within such areas will be free from flooding or flood damages. This chapter shall not create liability on the part of the community or any official or employee thereof for any flood damages that result from reliance on this chapter or any administrative decision lawfully made thereunder.
(Ord. No. 019528, § 1, 8-1-2023)

Article IV. Administration

18.60.140 Designation of the floodplain administrator.

The city manager shall designate a Texas licensed professional engineer as the floodplain administrator to administer and implement the provisions of this chapter and other appropriate sections of 44 CFR (National Flood Insurance Program regulations) pertaining to floodplain management.
(Ord. No. 019528, § 1, 8-1-2023)

18.60.150 Duties and responsibilities of the floodplain administrator.

Duties and responsibilities of the floodplain administrator shall include, but not be limited to, the following:

A. Maintain and hold open for public inspection all records pertaining to the provisions of this chapter;

B. Review permit applications to determine whether proposed building sites will be reasonably safe from flooding;

C. Review, approve or deny all applications for development permits required by adoption of this chapter;

D. Review permits for proposed development to assure that all necessary permits have been obtained from those federal, state or local governmental agencies (including Section 404 of the Federal Water Pollution Control Act Amendments of 1972, 33 USC 1334) from which prior approval is required;

E. Where interpretation is needed as to the exact location of the boundaries of the areas of

special flood hazards (for example, where there appears to be a conflict between a mapped boundary and actual field conditions), the floodplain administrator shall make the necessary interpretation;

F. Notify, in riverine situations, adjacent communities and the state coordinating agency, which is the Texas Department of Water Resources, prior to any alteration or relocation of a watercourse, and submit evidence of such notification to the Federal Emergency Management Agency;

G. Assure that the flood-carrying capacity within the altered or relocated portion of any watercourse is maintained;

H. When base flood elevation data has not been provided in accordance with Section 18.60.080, the floodplain administrator shall obtain, review and reasonably utilize any base flood elevation data and floodway data available from a federal, state or other source, in order to administer the provisions of this chapter;

I. When a regulatory floodway has not been designated, the floodplain administrator must require that no new construction, substantial improvements or other development (including fill) shall be permitted within Zones A1-30 and AE on the community's FIRM, unless it is demonstrated that the cumulative effect of the proposed development, when combined with all other existing and anticipated development, will not increase the water surface elevation of the base flood more than one foot at any point within the community;

J. Maintain surveillance over the operational and maintenance condition of the flood control system to ensure its safe and effective functioning; notify the street director of any required maintenance and/or repair work;

K. Conduct an annual inspection of the flood control system and provide a written inspection report, including an assessment of the operational condition, safety, effectiveness and maintenance condition of the system, and a line item list of required special maintenance or repairs, to the city manager or his designee and the director of the department of transportation, or to such other person, agency, department or entity as may be appropriate pursuant to other ordinances adopted by the city;

L. Review the annual schedule of maintenance for flood control facilities prepared by the street director and forward the annual schedule to the city manager or designee, or to such other person, agency, department or entity as may be appropriate pursuant to other ordinances adopted by the city, with appropriate recommendations regarding any changes to frequency or nature of maintenance work proposed and/or requirements for special maintenance or repair;

M. Under the provisions of 44 CFR Chapter 1, Section 65.12, of the National Flood Insurance Program regulations, a community may approve certain development in Zones A1-30, AE, AH, on the community's FIRM which increases the water surface elevation of the base flood by more than one foot, provided that the community first completes all of the provisions required by Section 65.12.

(Ord. No. 019528, § 1, 8-1-2023)

18.60.160 Duties and responsibilities of the city manager or designee.

The city manager or his designee shall, to the extent that the following duties and responsibilities have not been delegated or assumed by another person, agency, department or entity pursuant to other ordinances adopted by the city:

A. Exercise overall management control of the construction, operation and maintenance of the flood control system;

B. Review, revise and approve the annual schedule of maintenance of the flood control system submitted by the street director;

C. Allocate resources as required to assure the timely execution of the annual maintenance schedule and the safe and effective operation of the flood control system.

(Ord. No. 019528, § 1, 8-1-2023)

18.60.170 Duties and responsibilities of the director of the department of transportation.

The director of the department of transportation shall, to the extent that the following duties and responsibilities have not been delegated or assumed by another person, agency, department or entity pursuant to other ordinances adopted by the city:

A. Be the custodian of the flood control system, including all dams, detention all retention basins, outlet works, channels, pumping stations and all other public drainage conveyance structures;

B. Maintain and repair the system to ensure its safety and operational capability;

C. Maintain full-time surveillance of the operational readiness of the system. Immediately notify the city manager or his designee and the floodplain administrator of any system component that is in a state of reduced operational readiness;

D. Direct the operation of the system during storms and flooding to maximize the effectiveness of the system in reducing damage to public and private property and danger to public safety;

E. Participate in the annual inspection of the flood control system conducted by the floodplain administrator;

F. Prepare and submit to the floodplain administrator an annual schedule of maintenance and repair to the flood control system;

G. Carry out the annual schedule of maintenance repair as approved by the city manager or his designee.

(Ord. No. 019528, § 1, 8-1-2023)

18.60.180 Development permit procedures.

A. Application for a floodplain development permit shall be presented to the floodplain administrator on forms furnished by him/her and may include, but not be limited to, plans in duplicate drawn to scale showing the location, dimensions, and elevation of proposed landscape alterations, existing and proposed structures, including the placement of manufactured homes, and the location of the foregoing in relation to areas of special flood hazard. Additionally, the following information is required:

1. Elevation (in relation to mean sea level) of the lowest floor (including basement) of all new and substantially improved structures;

2. Elevation in relation to mean sea level to which any nonresidential structure shall be flood proofed;

3. A certificate from a Texas licensed professional engineer that the nonresidential floodproofed structure shall meet the floodproofing criteria of Section 18.60.200(B) of this chapter;

4. Description of the extent to which any watercourse or natural drainage will be altered or relocated as a result of proposed development;

5. Maintain a record of all such information in accordance with Section 18.60.150(A) of this chapter.

B. Approval or denial of a building or grading permit by the floodplain administrator shall be based on all of the provisions of this chapter and the following relevant factors:

1. The danger to life and property due to flooding or erosion damage;

2. The susceptibility of the proposed facility and its contents to flood damage and the effect of such damage on the individual owner;

3. The danger that materials may be swept onto other lands to the injury of others;

4. The compatibility of the proposed use with existing and anticipated development as determined by the planning official;

5. The safety of access to all buildings in the time of flood;

6. The expected heights, velocity, duration, rate of rise and sediment transport of the floodwaters and the effects of wave action, if applicable, expected at the site;

7. The justification of the proximity of the facility to the abutting floodway, where applicable;

8. The availability of alternate locations, not subject to flooding or erosion damage, for the proposed use;

9. The relationship of the proposed use to the comprehensive plan for that area.

C. Variance Procedures.

1. The appeals officer shall hear and render judgment on requests for variances from the requirements of this chapter.

2. The appeals officer shall hear and render judgment on an appeal only when it is alleged there is an error in any requirement, decision, or determination made by the floodplain administrator in the enforcement or administration of this chapter.

3. Any person or persons aggrieved by the decision of the appeals officer may appeal such decision in the courts of competent jurisdiction.

4. The floodplain administrator shall maintain a record of all actions involving an appeal and shall report variances to the Federal Emergency Management Agency upon request.

5. Variances may be issued for the reconstruction, rehabilitation or restoration of structures listed on the National Register of Historic Places or the State Inventory of Historic Places, without regard to the procedures set forth in the remainder of this chapter.

6. Variances may be issued for new construction and substantial improvements to be erected on a lot of one-half acre or less in size contiguous to and surrounded by lots with existing structures constructed below the base flood level, providing the relevant factors in subsection B of this section have been fully considered. As the lot size increases beyond the one-half acre, the technical justification required for issuing the variance increases.

7. Upon consideration of the factors noted above and the intent of this chapter, the appeals officer may attach such conditions to the granting of variances as it deems necessary to further the purpose and objectives of this chapter.

8. Variances shall not be issued within any designated floodway if any increase in flood levels during the base flood discharge would result.

9. Variances may be issued for the repair or rehabilitation of historic structures upon a determination that the proposed repair or rehabilitation will not preclude the structure's continued designation as a historic structure and the variance is the minimum necessary to preserve the historic character and design of the structure.

10. Prerequisites for granting variances:

a. Variances shall only be issued upon a determination that the variance is the minimum necessary, considering the flood hazard, to afford relief.

b. Variances shall only be issued upon: (i) showing a good and sufficient cause; (ii) a determination that failure to grant the variance would result in exceptional hardship to the applicant, and (iii) a determination that the granting of a variance will not result in increased flood heights, additional threats to public safety, extraordinary public expense, create nuisances, cause fraud on or victimization of the public, or conflict with the El Paso City Code.

c. Any application to which a variance is granted shall be given written notice that the structure will be permitted to be built with the lowest floor elevation below the base flood elevation, and that the cost of flood insurance will be commensurate with the increased risk resulting from the reduced lowest floor elevation.

11. Variances may be issued by a community for new construction and substantial improvements and for other development necessary for the conduct of a functionally dependent use provided that (i) the criteria outlined in subsections (C)(1) through (9) of this section are met, and (ii) the structure or other development is protected by methods that minimize flood damages during the base flood and create no additional threats to public safety.

D. Development permit review fees for any Federal Emergency Management Agency (FEMA) applications shall be as established by city council in the annual budget resolution.

(Ord. No. 019528, § 1, 8-1-2023; Ord. No. 019762, § 8, 7-22-2025)

Article V. Provisions for Flood Hazard Reduction

18.60.190 General standards.

In all areas of special flood hazards, the following provisions are required for all new construction and substantial improvements:

A. All new construction or substantial improvements shall be designed or modified and adequately anchored to prevent flotation, collapse or lateral movement of the structure resulting from hydrostatic pressure and hydrostatic loads, including the effects of buoyancy;

B. All new construction or substantial improvements shall be constructed by methods and practices that minimize flood damage;

C. All new construction or substantial improvements shall be constructed with materials resistant to flood damage;

D. All new construction or substantial improvements shall be constructed with electrical, heating, ventilation, plumbing and air conditioning equipment and other service facilities that are designed and/or located so as to prevent water from entering or accumulating within the components during conditions of flooding, and be elevated a minimum of one foot above the BFE;

E. All new and replacement water supply systems shall be designed to minimize or eliminate infiltration of floodwaters into the system;

F. New and replacement sanitary, sewage systems shall be designed to minimize or eliminate infiltration of floodwaters into the system and discharge from the systems into floodwaters; and

G. On-site waste disposal systems shall be located to avoid impairment to them or contamination from them during flooding.

(Ord. No. 019528, § 1, 8-1-2023)

18.60.200 Specific standards.

In all areas of special flood hazards where base flood elevation data has been provided as set forth in (a) Section 18.60.080, (b) Section 18.60.150(H), or (c) Section 18.60.210(B) of this chapter, the following provisions are required:

A. Residential Construction. New construction and substantial improvement of any residential structure shall have the lowest floor (including basement) be elevated a minimum of one foot above the BFE. A Texas registered professional engineer, architect, or land surveyor shall submit a Federal Emergency Management Agency National Flood Insurance Program Elevation Certificate to the floodplain administrator that the standard of this subsection as proposed in Section 18.60.180(A)(1) of this chapter is satisfied.

B. Nonresidential Construction. New construction and substantial improvements of any commercial, industrial or other nonresidential structure shall have either the lowest floor (including basement) be elevated a minimum of one foot above the base flood elevation or, together with appurtenant utility and sanitary facilities, be designed so that at least one foot above the BFE the structure is watertight with walls substantially impermeable to the passage of water and with structural components having the capability, of resisting hydrostatic and hydrodynamic loads and effects of buoyancy. A Texas registered professional engineer or architect shall develop and/or review structural design, specifications and plans for the construction, and shall certify that the design and methods of construction are in accordance with accepted standards of practice as outlined in this subsection. A record of such certification, which includes the specific elevation (in relation to mean sea level) to which such structures are floodproofed, shall be maintained by the floodplain administrator.

C. Enclosures. New construction and substantial improvements, with fully enclosed areas below the lowest floor that are usable solely for parking of vehicles, building access or storage in an area other than a basement and which are subject to flooding shall be designed to automatically equalize hydrostatic flood forces on exterior walls by allowing for the entry and exit of floodwaters. Designs for meeting this requirement must either

be certified by a Texas registered professional engineer or architect or meet or exceed the following minimum criteria:

1. A minimum of two openings having a total net area of not less than one square inch for every square foot of enclosed area subject to flooding shall be provided.

2. The bottom of all openings shall be no higher than one foot above grade.

3. Openings may be equipped with screens, louvers, valves or other coverings or devices provided that they permit the automatic entry and exit of floodwaters.

D. Manufactured Homes.

1. Require that all manufactured homes to be placed within Zone A on a community's FHBM or FIRM shall be installed using methods and practices which minimize flood damage. For the purposes of this requirement, manufactured homes must be elevated and anchored to resist flotation, collapse, or lateral movement. Methods of anchoring may include, but are not limited to, use of over-the-top or frame ties to ground anchors. This requirement is in addition to applicable state and local anchoring requirements for resisting wind forces.

2. Require that manufactured homes that are placed or substantially improved within Zones A1-30, AH, and AE on the community's FIRM on sites (i) outside of a manufactured home park or subdivision, (ii) in a new manufactured home park or subdivision, (iii) in an expansion to an existing manufactured home park or subdivision, or (iv) in an existing manufactured home park or subdivision on which a manufactured home has incurred "substantial damage" as a result of a flood, be elevated on a permanent foundation such that the lowest floor of the manufactured home is elevated a minimum of one foot above the BFE and be securely anchored to an adequately anchored foundation system to resist flotation, collapse, and lateral movement.

3. Require that manufactured homes be placed or substantially improved on sites in an existing manufactured home park or subdivision with Zones A1-30, AH and AE on the community's FIRM that are not subject to the provisions of this section be elevated so that either:

a. The lowest floor of the manufactured home is elevated a minimum of one foot above the base flood elevation; and

b. The manufactured home chassis is supported by reinforced piers or other foundation elements adequately anchored to foundation system to resist flotation, collapse, and lateral movement.

E. Recreational Vehicles. Require that recreational vehicles placed on sites within Zones A1-30, AH and AE on the community's FIRM either (i) be on the site for fewer than one hundred eighty consecutive days, or (ii) be fully licensed and ready for highway use, or (iii) meet the permit requirements of Section 18.60.180(A), and the elevation and anchoring requirements for "manufactured homes" in subsection A of this section. A recreational vehicle is ready for highway use if it is on its wheels or jacking system, is attached to the site only by quick disconnect type utilities and security devices, and has no permanently attached additions.

(Ord. No. 019528, § 1, 8-1-2023)

18.60.210 Standards for proposed subdivision.

A. All subdivision proposals, including manufactured home parks and subdivisions, shall be consistent with Sections 18.60.020, 18.60.030 and 18.60.040 of this chapter.

B. All proposals for the development of subdivisions, including manufactured home parks and subdivisions, shall meet building and grading permit requirements of Sections 18.60.090 and 18.60.180 and the provisions of this chapter.

C. Base flood elevation data shall be generated for subdivision proposals and other proposed developments, including manufactured home parks and subdivisions which are greater than fifty lots or five acres, whichever is lesser, if not otherwise provided pursuant to Section 18.60.080 or Section 18.60.150(H) of this chapter.

D. All subdivision proposals, including manufactured home parks and subdivisions, shall have adequate drainage provided to reduce exposure to flood hazards.

E. All subdivision proposals, including manufactured home parks and subdivisions, shall have public utilities and facilities such as sewer, gas, electrical and water systems located and constructed to minimize or eliminate flood damage.
(Ord. No. 019528, § 1, 8-1-2023)

18.60.220 Standards for areas of shallow flooding (AO/AH zones).

Located within the areas of special flood hazard established in Section 18.60.080 are areas designated as shallow flooding. These areas have special flood hazard associated with base flood depths of one to three feet where a clearly defined channel does not exist and where the path of flooding is unpredictable, and where velocity flow may be evident such flooding is characterized by ponding or sheet flow; therefore, the following provisions apply:

A. All new construction and substantial improvements of residential structures shall:

1. Have the lowest floor (including basement, machinery, and equipment servicing the building) elevated above the highest adjacent grade (HAG) to at least one foot above the depth number specified in feet on the community's FIRM, or at least three feet if no depth number is provided.

B. All new construction and substantial improvements of nonresidential structures shall:

1. Have the lowest floor (including basement, machinery, and equipment servicing the building) elevated above the highest adjacent grade (HAG) to at least one foot above the depth number specified in feet on the community's FIRM, or at least three feet if no depth number is provided; or

2. Together with attendant utility and sanitary facilities be designed so that below the base specified flood depth in an AO Zone, or below the base flood elevation in an AH zone, level the structure is watertight with walls substantially impermeable to the passage of water and with structural components having the capability of resisting hydrostatic and hydrodynamic loads of effects of buoyancy.

C. A Texas registered professional engineer or architect shall submit a certification to the floodplain administrator that the standards of this section, as proposed in Section 18.60.180(A)(3) of this chapter, are satisfied.

D. Within Zone AH or AO, adequate drainage paths shall be required around structures on slopes, to guide floodwaters around and away from proposed structures.
(Ord. No. 019528, § 1, 8-1-2023)

18.60.230 Floodways.

Located within areas of special flood hazard established in Section 18.60.080 of this chapter, are areas designated as floodways. Since the floodway is an extremely hazardous area due to the velocity of floodwaters which carry debris, potential projectiles and erosion potential, the following provisions shall apply:

A. Encroachments are prohibited, including fill, new construction, substantial improvements and other development within the adopted regulatory floodway unless it has been demonstrated through hydrologic and hydraulic analyses performed in accordance with standard engineering practice that the proposed encroachment would not result in any increase in flood levels within the community during the occurrence of the base flood discharge.

B. If subsection A of this section is satisfied, all new construction and substantial improvements shall comply with all applicable flood hazard reduction provisions of this chapter.

C. Under the provisions of 44 CFR Chapter 1, Section 65.12, of the National Flood Insurance Program Regulation, a community may permit encroachments within the adopted regulatory floodway that would result in an increase in base flood elevations, provided that the community first completes all of the provisions required by Section 65.12.
(Ord. No. 019528, § 1, 8-1-2023)

18.60.240 Violation.

A. It is unlawful for any person to violate any provision of this chapter.

B. Any person violating any provision of this chapter shall be deemed guilty of a misdemeanor and shall be punished as provided in Sections 1.08.010 through 1.08.030 of this Code.

(Ord. No. 019528, § 1, 8-1-2023)

Chapter 18.70

ENERGY CONSERVATION CODE*

Sections:

18.70.010 Short title.

18.70.020 Adoption.

18.70.030 Reserved.

18.70.040 Reserved.

18.70.050 Reserved.

18.70.060 Section C402.6 Air Barrier Requirement, Added.

18.70.070 Reserved.

18.70.080 Reserved.

18.70.090 Appendix CA Board of Appeals, Adopted.

18.70.100 Appendix CB Solar Ready Zone, Adopted.

18.70.110 Appendix CC Zero Energy Commercial Building, Adopted.

18.70.120 Reserved.

18.70.130 Reserved.

18.70.140 Reserved.

18.70.150 Section R402.4.1.4 Air Leakage Required Certifications, Added.

18.70.160 Section R403.3.8 Duct leakage Required Certifications, Added.

18.70.170 Reserved.

18.70.180 Appendix RA Board of Appeals, Adopted.

18.70.190 Appendix RB Solar Ready Provisions - Detached One- and Two-Family Dwellings and Townhouses, Adopted.

18.70.200 Appendix RC Zero Energy Residential Buildings, Adopted.

18.70.210 Conflicting ordinances.

***Editor's note—**Ord. No. 019528, § 12, adopted Aug 1, 2023, amended Ch. 18.70 in its entirety to read as set out herein. The former Ch. 18.70, §§ 18.70.010—18.70.210, pertained to similar subject matter and derived from Ord. No. 18518, § 1, adopted May 31, 2016.

18.70.010 Short title.

This chapter may be cited as the "Energy Conservation Code."
(Ord. No. 019528, § 1, 8-1-2023)

18.70.020 Adoption.

The book entitled "International Energy Conservation Code," 2021 Edition, a copy of which authenticated by the city clerk is on file in the city clerk's office, is adopted as the Existing Building Code of the city, in its entirety as fully as if copied in length in this chapter.
(Ord. No. 019528, § 1, 8-1-2023)

18.70.030 Reserved.

18.70.040 Reserved.

18.70.050 Reserved.

18.70.060 Section C402.6 Air Barrier Requirement, Added.

C402.6 Air barrier requirement. Insulation (including but not limited to loose fill, spray applied cellular fiber insulation as well as other blanket and batts insulation) installed in assemblies more than 60 degrees from the horizontal must be in substantial contact with an air barrier on all sides.

Exception: Air impermeable insulation. Air impermeable insulation is defined as:

A material having an air permeance equal to or less than 0.02 L/s-m2 at 75 Pa pressure differential tested according to ASTM E2178 or E283.
(Ord. No. 019528, § 1, 8-1-2023)

18.70.070 Reserved.

18.70.080 Reserved.

18.70.090 Appendix CA Board of Appeals, Adopted.

(Ord. No. 019528, § 1, 8-1-2023)

18.70.100 Appendix CB Solar Ready Zone, Adopted.

(Ord. No. 019528, § 1, 8-1-2023)

18.70.110 Appendix CC Zero Energy Commercial Building, Adopted.

(Ord. No. 019528, § 1, 8-1-2023)

18.70.120 Reserved.

18.70.130 Reserved.

18.70.140 Reserved.

18.70.150 Section R402.4.1.4 Air Leakage Required Certifications, Added.

R402.4.1.4 Required Certifications. Air leakage testing shall be performed by a third party certified to perform air infiltration testing by a national or state organization approved by the code official. The third party shall not be employed by nor have a financial interest in the entity that constructs the building. Accepted certifications include RESNET Home Energy Rater and Home Field Inspector, Building Performance Institute Infiltration and Duct Leakage professional or Building Analyst certification, and others as approved by the city.

R402.4.1.5 Third Party Registration. Approved third party performing air infiltration testing shall be registered with the city.

(Ord. No. 019528, § 1, 8-1-2023)

18.70.160 Section R403.3.8 Duct leakage Required Certifications, Added.

R403.3.8 Required Certifications. Duct leakage testing shall be performed by an approved third party certified to perform duct leakage testing by a national or state organization approved by the code official. The approved third party shall not be employed by nor have a financial interest in the entity that constructs the building. Accepted certifications include RESNET Home Energy Rater and Home Field Inspector, Building Performance Institute Infiltration and Duct Leakage professional or Building Analyst certification and others as approved by the code official.

R403.3.9 Third Party Registration. Approved third party performing duct leakage testing shall be registered with the city.

(Ord. No. 019528, § 1, 8-1-2023)

18.70.170 Reserved.

18.70.180 Appendix RA Board of Appeals, Adopted.

(Ord. No. 019528, § 1, 8-1-2023)

18.70.190 Appendix RB Solar Ready Provisions - Detached One- and Two-Family Dwellings and Townhouses, Adopted.

(Ord. No. 019528, § 1, 8-1-2023)

18.70.200 Appendix RC Zero Energy Residential Buildings, Adopted.

(Ord. No. 019528, § 1, 8-1-2023)

18.70.210 Conflicting ordinances.

All ordinances and parts of ordinances in conflict with the provisions of this chapter are hereby repealed.

(Ord. No. 019528, § 1, 8-1-2023)

Chapter 18.80

ALTERNATIVE ENERGY CONSERVATION CODE

Sections:

18.80.010 Short title.

18.80.020 Adoption.

18.80.030 Incentives.

18.80.010 Short title.

This chapter may be cited as the "Alternative Energy Conservation Code".
(Ord. No. 17840, § B, 7-31-2012, eff. 9-1-2012)

18.80.020 Adoption.

The book entitled "International Energy Conservation Code," 2012 Edition, a copy of which authenticated by the city clerk is on file in the city clerk's Office, is adopted as the Alternative Energy Conservation Code of the city, in its entirety as fully as if copied at length in this chapter.
(Ord. No. 17840, § B, 7-31-2012, eff. 9-1-2012)

18.80.030 Incentives.

For developers desiring to design new buildings, either commercial buildings or low-rise residential buildings (three stories or less in height above grade), pursuant to the minimum energy conservation requirements of the 2012 Edition of the International Energy Conservation Code, the following incentives shall be offered:

1. Eligibility requirements.

a. The incentives listed below shall apply only to new construction.

b. The incentives listed below are limited to ten projects per applicant.

c. Applicants who choose to design and build pursuant to the 2012 International Energy Conservation Code shall comply with all requirements of the 2012 International Energy Conservation Code.

2. Incentives.

a. Approved applicants shall receive expedited plan review.

b. Approved applicants shall receive a fifty percent reduction of the master permit fee associated with the project, on a first come first served basis, for the first one hundred approved projects. Thereafter, approved applicants shall receive a twenty percent reduction of the master permit fee associated with the project, on a first come first served basis, for the first one hundred approved projects.

c. Approved applicants shall receive advanced notice of stakeholder meetings prior to the mandatory adoption of a future Energy Conservation Code by the city.
(Ord. No. 17840, § B, 7-31-2012, eff. 9-1-2012)

Title 19

SUBDIVISION AND DEVELOPMENT PLATS*

Chapters:

Article 1. Platting Procedures

19.01	Provisions Applicable to All Platting Procedures
19.02	Land Studies
19.03	Preliminary Plats
19.04	Final Plat
19.05	Development Plats
19.06	Minor Plats
19.07	Revisions to Recorded Plats
19.08	Construction Plans and Management

Article 2. Subdivision Standards

19.09	General Requirements
19.10	Dedication, Construction Requirements and City Participation
19.11	Extraterritorial Jurisdiction (ETJ) Standards
19.12	Water
19.13	Wastewater
19.14	Utilities Generally
19.15	Roadways
19.16	Streetlighting
19.17	Driveways
19.18	Traffic Impact Analysis
19.19	Stormwater Management Requirements
19.20	Parks and Open Space
19.21	Sidewalks
19.22	Fire Lanes and Fire Department Access
19.23	Easements, Block and Lot Design and Improvement Standards
19.24	Mountain Development Area (MDA) Standards

** Prior history: Prior code §§ 19A-1—19A-13. Ords. 8139, 8319, 8519, 8600, 8954, 9255, 9431, 9645, 10212, 10476, 10521, 10546, 10555, 10601, 10606, 10790, 10799, 10868, 11068, 11096, 11484, 12104, 12105, 12475, 12836, 12915, 13022, 13062, 13076, 13111, 13348, 13907, 13956, 14395, 14696, 14789, 16003, 16034, 16042, 16048, 16139, 16291, 16365, 16429, 16446, 16532, 16663, 16685, 16802, 16816 and 16878.

19.25 Additional Requirements
19.26 Alternative Subdivision/Smart Code Designs
19.27 Hillside Development Area

Article 3. Authority of Decision-Makers

19.30 General Provisions
19.31 Responsible Officials
19.32 City Plan Commission
19.33 City Council
19.34 Development Coordinating Committee (DCC)

Article 4. Specific Application and Processing Requirements

19.37 Application Processing
19.38 Notice Requirements
19.39 Public Hearings
19.40 Post-Decision Procedures
19.41 Expiration, Extension and Reinstatement
19.42 Enforcement, Penalty and Revocation of Permits
19.43 Reserved

Article 5. Relief Procedures

19.45 Appeals
19.46 Proportionality Appeal
19.47 Reserved
19.48 Petition for Waivers or Exceptions

Article 6. Definitions

19.50 Definitions

Article 7. Fees

19.60 Fees for Services

Article 8. Conflict of Laws

19.65 Conflict of Laws

Appendix

Article 1. Platting Procedures

Chapter 19.01

PROVISIONS APPLICABLE TO ALL PLATTING PROCEDURES

Sections:

19.01.010 Authority, purpose and applicability.

19.01.020 Types of plats required.

19.01.030 Exemptions.

19.01.040 Time for decision on plats and land studies.

19.01.050 Applications and procedures.

19.01.060 Stages of plat approval.

19.01.010 Authority, purpose and applicability.

A. Authority. The procedures of this article are authorized under the authority of Texas Local Government Code, Chapter 212 (including Subchapter B) and the city's Charter. The provisions of this article expressly extend to all areas inside the city limits and throughout the city's extraterritorial jurisdiction.

B. Purpose.

1. The provisions of this title are intended to implement standards and requirements provided for herein, and shall be minimum requirements for the subdivision and/or development of land within the City of El Paso and its extraterritorial jurisdiction, as authorized by state statute.

2. The subdivision and/or development of land, as it affects a community's quality of life, is an activity where regulation is a valid function of municipal government. Through the application of these regulations, the interests of public and private parties are protected by the granting of certain rights and privileges. By establishing a fair and rational procedure for developing land, the requirements in this title further the possibility that land will be developed in accordance with existing physical, social, economic and environmental conditions.

3. The provisions of this title are intended to implement the following objectives:

a. Promote the development and the utilization of land in a manner that assures an attractive and high quality community environment in accordance with the comprehensive plan and the zoning regulations (where applicable) of the City of El Paso;

b. Guide and assist property owners and applicants in the correct procedures to be followed, and to inform them of the standards which shall be required;

c. Protect the public interest by adopting standards for the location, design, class and type of streets, walkways (sidewalks), trails, alleys, utilities and essential public services;

d. Assist orderly, efficient and coordinated development within the city's limits and its extraterritorial jurisdiction;

e. Integrate the development of various tracts of land into the existing community, and coordinate the future development of adjoining tracts;

f. Ensure the most efficient and beneficial provision of public facilities and services for each tract being subdivided;

g. Provide for compatible relationships between land uses as allowed by the Zoning Code and buildings;

h. Provide for the circulation of traffic throughout the municipality;

i. Provide for pedestrian circulation that is appropriate for the various uses of land and buildings;

j. Prevent pollution of the air, streams, bodies of water, arroyos and aquifers; assure the adequacy of drainage facilities; safeguard both surface and groundwater supplies, as well as natural resources and endangered or threatened plant and animal life; and encourage the wise use and management of natural resources throughout the municipality in order to preserve the integrity, stability and beauty of the community and the value of the land;

k. Preserve the natural beauty and topography of the area regulated by this title, and ensure development that is appropriate with regard to these natural features;

l. Establish adequate and accurate records of land subdivision;

m. Ensure that public or private facilities are available and will have sufficient capacity to serve proposed and future developments and citizens within the city and its extraterritorial jurisdiction;

n. Provide for adequate light, air and privacy; secure safety from fire, flood and other danger; and prevent overcrowding of the land and undue congestion of population;

o. Ensure that each subdivision approved by the city is designed in such a way as to minimize stormwater runoff from the site in accordance with the Drainage Design Manual (DDM) and to minimize flooding potential upstream, downstream and within from such subdivision with the DDM.

C. Applicability.

1. The provisions of this title apply to any division of land, combination of separate land parcels, and/or development of land within the corporate boundaries of the city and within its extraterritorial jurisdiction.

2. No permit shall be issued for any development on a property until either a subdivision plat or a development plat has been approved, and if required by this title, filed for record, in accordance with Title 19, except that the following shall be exceptions to this requirement:

a. Permits for repair or remodeling of an existing structure or for site improvements (parking areas, driveways, etc.) which involve no increase in square footage; or

b. The replacement of an existing primary single-family or duplex structure, not to exceed the square footage, nor deviate from the original location, of the original structure, provided that the new structure is in conformance with all other provisions of the City Code; or

c. Building additions to single-family or duplex structures of not over one hundred percent of the existing structure's value, and of not over fifty percent of the gross floor area of the structure; provided that any increase in square footage of a structure, any additions to a structure, and/or any site improvements are in compliance with all other provisions of the City Code; or

d. Demolition permits, or permits for removal of a structure from a parcel or tract; or

e. Permits for accessory buildings (as defined in Title 20 of the Zoning Ordinance).

3. No owner or agent of the owner of any parcel of land located in a proposed subdivision shall transfer or sell any part of the parcel before a subdivision is duly recorded with the county clerk as provided within this title.

4. The subdivision of any lot or any parcel of land by the use of metes and bounds description, contract of sale, or any other legal instrument, for the purpose of sale, transfer, lease or development is prohibited except as otherwise provided for in this title.

D. Subdivision plat and development plat rules. The provisions of this title, the standards governing water and wastewater facilities applicable to plats, and the technical standards contained in the City of El Paso Street Design Manual (SDM), as developed by the city manager or designee and adopted by ordinance by the city council and as may be amended from time to time, constitute the subdivision and development rules of the City of El Paso, which apply to applications for plat approval inside city limits and within the city's extraterritorial jurisdiction. The SDM shall be maintained by and be available in the planning division of the planning and inspections department. Other ordinances of the city may also apply to land development and must be complied with. (Ord. 16882 § 2 (part), 2008)

(Ord. No. 17236, §§ 1, 27, 11-10-2009; Ord. No. 17251, § 1, 12-15-2009; Ord. No. 17396, § 1, 8-24-2010; Ord. No. 17561, § 3, 5-17-2011; Ord. No. 19243, § 1, 10-12-2021; Ord. No. 19327, § 2, 4-26-2022)

19.01.020 Types of plats required.

A. Subdivision Plats. A final plat shall be submitted approved and filed prior to any non-exempt land division.

B. Development plats. Any person who proposes the development of a tract of land or parcel located within the limits or within the city's extra-territorial jurisdiction of the municipality, to include tracts exempted from preparing a subdivision plat, must have a development plat of the tract or parcel prepared and approved in accordance with Chapter 19.05 prior to development on the tract or parcel. Tracts or parcels included within an approved subdivision plat meeting all the requirements of Title 19 are exempt from the requirements for submittal of a development plat.

C. Replats. A replat and the provisions of Chapter 19.07 shall be required any time a platted, recorded lot is further divided or expanded, thereby changing the boundary and dimensions of the property, except as allowed below in Section 19.01.030, Exemptions. In the case of revisions to recorded plats or lots, a minor or amending plat may also be utilized if allowed by state law in accordance with Chapter 19.06 and Section 19.07.040. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 17561, § 4, 5-17-2011; Ord. No. 19243, § 2, 10-12-2021)

19.01.030 Exemptions.

Exemptions. The following land divisions are exempt from the requirements of this article that apply to plats, provided that the applicant has an approved exemption determination application in accordance with Section 19.37.100:

1. The combining of two or more legally recorded lots into one parcel will not be required to be replatted into one lot provided all lots are permanently joined by a structure or improvements built over the property line(s) are in accordance with the zoning ordinance;

2. The division of a legally recorded lot into two portions and the combining of the portions of the lots with the adjacent lots on each side shall be allowed without replatting, provided each new lot complies with the zoning ordinance. The parcel line dividing the middle lot shall become the new lot line and the side setbacks required by zoning shall be measured from that line;

3. The split by metes and bounds and subsequent issuance of a permit for improvements upon a portion of a platted lot within a commercial unit development;

4. Provided, however, that on those parcels described in subsections 1., 2. and 3. above, no additional right-of-way or public easements must be dedicated, or public utilities or roadways must be constructed;

5. Sale, inheritance, or gift of land by metes and bounds of tracts upon which no improvements, development, subdivision or alteration is intended, provided however, that prior to construction of improvements, a plat meeting the requirements of the ordinance codified in this title shall be completed and recorded;

6. Use of existing cemeteries complying with all state and local laws and regulations;

7. A division of land created by order of a court of competent jurisdiction, provided however, that prior to construction of improvements, a plat meeting the requirements of the ordinance codified in this title shall be completed and recorded prior to the issuance of permits;

8. Creation of a remainder tract in accordance with Section 19.02.060, provided such remainder tract is suitable for development in the future and does not make any other tracts undevelopable under current City of El Paso ordinances, and provided however, that prior to construction of improvements, a plat meeting the requirements of the ordinance codified in this title shall be completed and recorded prior to the issuance of permits;

9. Any development activity associated with a plat that conforms to the subdivision requirements set forth in this chapter;

10. Bona fide agricultural activities; and

11. Construction of agricultural accessory structures and related development activities.

12. The acquisition of land for the purpose of widening or extending public rights-of-way, stormwater drainage and water or wastewater infrastructure facilities.

13. The division of a legally subdivided and recorded lot in which a duplex is constructed, located in a district where duplexes are permitted may be resubdivided by metes and bounds into two separate lots, provided that the following requirements are met:

a. One dwelling unit of the duplex must remain on each separate lot at the time that the division is created;

b. The metes and bounds survey and survey map are prepared by a licensed surveyor of the State of Texas;

c. No panhandle lots or lots without access are created;

d. The metes and bounds survey and survey map shall be duly recorded and filed with the office of the El Paso County Clerk;

e. A copy of the recorded instrument shall be provided with all building permit applications; and

f. Any future building construction of dwelling units shall comply with all provisions of the zoning code.

14. Land to be used for electric company substations or minor utility facilities as defined in Title 20 of the City Code.

15. Construction of accessory buildings and additions of less than fifty percent of the total existing square footage of schools that were built at least thirty years prior to the date that the current submitted application is deemed complete. (Ord. 16882 § 2 (part), 2008)

(Ord. No. 17236, § 27, 11-10-2009; Ord. No. 17251, § 1, 12-15-2009; Ord. No. 17276, § 1, 2-16-2010; Ord. No. 18056, § 1, 7-16-2013; Ord. No. 18627, § 1, 2-7-2017; Ord. No. 19243, § 3, 10-12-2021)

19.01.040 Time for decision on plats and land studies.

A. Time Period for Action. All preliminary plat, final plat, minor plat, development plat, replat, and land study applications shall be acted upon within thirty days from the date a submitted application is deemed complete as provided for in Section 19.37.020, unless a written waiver request is submitted in accordance with subsection B. below. An applicant may request in writing an extension to the thirty-day approval period to allow additional time to comply with the requirements of this title and all other ordinances. The request may be for a period not to exceed thirty days.

B. Waiver of Right to Thirty-Day Action.

1. Responsible Official. The city manager or designee shall be the responsible official and the initial decision-maker for a waiver of right to thirty-day action or extension to the thirty-day action requirement for minor applications. The city plan commission shall be the responsible official and the initial decision-maker for a waiver of right to thirty-day action or extension to the thirty-day action requirement for all preliminary plat, final plat, development plat, replat, and land study applications.

2. Request. An applicant may request in writing a waiver of right to thirty-day action in relation to the decision time for preliminary plats, final plats, minor plats, development plats, replats, or land studies suitable for approving within thirty days as mandated by state law. The waiver request shall contain a statement of the time for which a waiver is sought. With the exception of a request for a minor plat application, no waiver shall be granted for a period less than the commission's next regularly scheduled meeting. All waivers and extension requests, to include those relating to minor plat applications, shall be for a period not to exceed thirty days.

3. Received. Waiver and extension requests for preliminary plats, final plats, development plats, replats, and land studies may be received by the city manager, or designee prior to the city plan commission meeting agenda posting deadline at which action would have to be taken (based on the thirty-day requirement in state law) on the plat application. Waiver requests that are not received

by that day shall not be considered properly submitted, and action shall be taken on the plat application at such meeting as scheduled.

4. Action. The city plan commission shall take action on the waiver of right to thirty-day action request within the thirty-day period for acting on the plat. If the waiver is granted, action on the plat application shall be waived for a certain period of time, consistent with the approved waiver.

5. Reserved.

6. Requirements Maintained. The granting of a waiver of right to thirty-day action request shall not be deemed in any way a waiver to any requirement within this title. A waiver from requirements herein is a separate and distinct process.

C. Preliminary, final, and development plat application within the extraterritorial jurisdiction. Where the land to be platted lies within the extraterritorial jurisdiction of the city in El Paso County, no preliminary, final or development plat application shall be accepted as complete in accordance with Section 19.37.020, unless the application also complies with Chapter 19.11 and its requirements regarding the ETJ. (Ord. 16882 § 2 (part), 2008) (Ord. No. 17236, § 27, 11-10-2009; Ord. No. 17561, § 5, 5-17-2011; Ord. No. 18056, § 2, 8-6-2013; Ord. No. 18971, § 1, 9-3-2019)

19.01.050 Applications and procedures.

Complete Application. Where a conflict exists between the procedures listed in this chapter and any other chapters of this title, the procedures of this chapter shall control.

A. An application must be complete in order to be accepted for review by the City of El Paso. All applications shall be made electronically or on forms available from the city. To be complete, it must comply with all the procedures and requirements of this title. Refer to Chapter 19.37 of this title and to the administrative submission requirements available in the planning division for complete application procedures and requirements.

B. Required documentation for the initial application to be considered complete for each review process is listed in subsections C through F below.

C. Preliminary Plat (See Chapter 19.03 for Substantive Requirements).

1. Application and related documents meeting the requirements in the preliminary plat submission checklist.

2. Application fee.

D. Final Plat (See Chapter 19.04 for Substantive Requirements).

1. Application and related documents meeting the requirements in the final plat submission checklist.

2. Application fee.

3. An electronic copy of the plat in a format acceptable to the city as specified in the DSC.

4. Field notes as specified in the DSC.

5. Title opinion or proof of ownership dated within thirty days of submission.

6. Final subdivision improvement plans with all accompanying documentation must be submitted prior to or at the time of submission of the final plat.

7. Drainage plans.

8. Utility plans, even though provided by another agency.

E. Minor Plat (See Chapter 19.06 for Substantive Requirements).

1. Application and related documents meeting the requirements in the final plat submission checklist.

2. Application fee.

3. An electronic copy of the plat in a format acceptable to the city tied to state plane coordinate system or city monuments as required.

4. Field notes as specified in the DSC.

5. Title opinion or proof of ownership dated within thirty days of submission.

6. Drainage plans.

F. Development plat (See Chapter 19.05 for substantive requirements).

1. Application and related documents meeting the requirements in the development plat submission checklist.

2. Application fee.

3. An electronic copy of the plat in a format acceptable to the city as specified in the DSC.

4. Field notes as specified in the DSC.

5. Title opinion or proof of ownership dated within thirty days of submission.

6. Final subdivision improvement plans with all accompanying documentation must be submitted prior to or at the time of submission of the development plat.

7. Drainage plans.

8. Utility plans, even though provided by another agency. (Ord. 16882 § 2 (part), 2008)

(Ord. No. 17236, §§ 2, 27, 11-10-2009; Ord. No. 17396, § 1, 8-24-2010; Ord. No. 17561, § 6, 5-17-2011; Ord. No. 19243, § 4, 10-12-2021)

19.01.060 Stages of plat approval.

A. Subdivision plats. A subdivision plat may be approved in three stages:

1. Land study (refer to Chapter 19.02); if required;

2. Preliminary plat (refer to Chapter 19.03); and

3. Final plat (refer to Chapter 19.04).

B. Development plats (refer to Chapter 19.05).

C. Combined applications. An applicant may submit applications for approval of a land study and a preliminary plat, or a preliminary plat and a final plat simultaneously. Such acceptance shall be on a form provided by the planning division. The combination plat must meet all requirements of a final plat prior to approval by the city plan commission. Engineering and subdivision improvement plans must also be submitted and approved in accordance with this title.

D. City manager or designee. The city manager, or designee shall be the responsible official for a plat, and the staff shall be the initial reviewing body for a plat application.

1. The city manager, or designee, and/or other city staff at the direction of the city manager, or designee, shall review all plat applications for completeness (refer to Section 19.37.020) based on a checklist and the administrative submission requirements supplied by the planning division.

2. The staff shall review all plat applications that are deemed complete for conformance with this chapter and any other applicable city regulations. (Ord. 16882 § 2(part), 2008)

(Ord. No. 17236, §§ 2, 10, 11-10-2009; Ord. No. 17396, § 2, 8-24-2010; Ord. No. 17561, § 7, 5-17-2011)

Chapter 19.02

LAND STUDIES

Sections:

19.02.010 Purpose, applicability and effect.
19.02.020 Application and procedures.
19.02.030 Decision.
19.02.040 Criteria for approval.
19.02.050 Expiration and extension.
19.02.060 Remainder tracts.
19.02.070 Revisions following approval of a land study.

19.02.010 Purpose, applicability and effect.

A. Purpose and Intent. The purpose of a land study shall be to delineate the sequence and timing of development within a proposed subdivision, where the tract to be developed is part of a larger parcel of land owned or controlled by the applicant, in order to determine compliance with the city's comprehensive plan and the availability and capacity of public improvements needed for the subdivision and the larger parcel. The purpose of the land study shall also be:

1. To elicit comment from the subdivider and the city technical staff regarding the proposed design of the land for the purpose of expediting subdivision application(s);

2. To reduce subdivision design and development costs when a subdivider proposes to phase the development or to develop various land uses;

3. To review and approve a general plan for the development of property including the layout of arterial streets, open areas, sites for public facilities, and utilities;

4. To determine the availability of existing services to the area, including street improvements, drainage, sewerage, fire protection, schools, parks and other such facilities within one mile abutting the proposed study area.

B. Applicability.

1. When Required. Prior to submission or concurrently with any subdivision application, the subdivider shall file an application for approval of a land study with the city manager, or designee. A land study application shall include all contiguous holdings of the subdivider, including land in common ownership, which is proposed to be developed or subdivided within the meaning of this title. For purposes of this title, a land study shall be required in all instances unless the city manager or designee finds that:

a. An approved detailed site development plan or generalized site plan incorporating the proposed development area provides sufficient information for the purposes outlined and the preparation of a plat;

b. A preliminary plat is submitted for the entire proposed development area, allowing review of the phasing for the whole property;

c. A finding made under this subsection shall be based on a determination by the city manager, or designee that the alternate plan or plat satisfies the purpose and intent of a land study submittal, and that the alternate plan or plat fully contains the information required for submission of a land study application. Where changes are made to an approved detailed site development plan, generalized site plan or preliminary plat that is used as a basis for a finding made by the city manager, or designee, the subdivider shall be required to submit a revised drawing of such approved plan or plat to the city manager or designee for proper recordkeeping. Failure to provide a revised drawing shall require that any subsequent subdivision application fully conform to the approved detailed site development plan, generalized site plan or preliminary plat on file; or

d. A referral by the city manager or their designee made to the city plan commission to determine the applicability of a land study submittal, or to appeal a negative finding pursuant to this subsection. The city plan commission shall review all reports and recommendations presented by the city manager or designee and shall make a determination as needed on the applicability provisions, or the appeal as necessary. An action taken by the city plan commission shall be binding on all parties.

2. A land study shall be required for any division of land where proposed development of the tract is to occur in phases and is not covered by a preliminary plat or other document listed in subsections (B)(1)(b), (B)(1)(c) and (B)(1)(d) above. Phasing for the land study shall not exceed a time period of five years plus 2 two-year extensions. Provided however, any extension of a land study beyond this period by the CPC shall automatically extend the phasing period as well. The applicant shall submit a schedule showing the proposed phasing of development that shall be approved along with the land study. If the land subject to the land study is part of a larger parcel, the remaining land shall be shown as a remainder tract, but shall not be included within the land study.

C. Effect.

1. Approval of a land study authorizes the subdivider to submit a preliminary plat application for each phase of development shown on the land study, subject to the phasing plan of development approved for the land.

2. Once a land study has been approved, all plats approved thereafter for the same land shall be consistent with the land study for so long as the land study remains in effect. Minor variations between the land study and the subsequent plat application(s) shall be permitted; in accordance with Section 19.02.070. (Ord. 16882 § 2 (part), 2008)

(Ord. No. 17236, § 27, 11-10-2009)

19.02.020 Application and procedures.

A. Responsible Official. The city manager or designee shall be the responsible official for a land study.

B. Submittal. All applications shall be submitted electronically or on a form supplied by the planning division with the required information as stated on the application form.

C. Prior Approved Applications. An application for a land study shall not be approved unless all zoning amendments, including a request for a zoning change or a comprehensive plan, thoroughfare plan or other adopted plan amendment, which are necessary to authorize the uses or layout proposed on the land study have been approved and remain in effect for the land included in the land study. An application may be conditionally approved subject to the other required zoning and plan amendment approvals being approved.

D. Accompanying Applications.

1. An application for a land study may be accompanied by an application for rezoning approval provided that the rezoning application shall be decided first.

2. An application for a land study may be accompanied by an application for approval of a preliminary plat for the first phase of the project, provided that the application for land study shall be decided first. The applicant may request simultaneous review. However, the applicant assumes all responsibility for any problems or issues created by simultaneous submission.

E. General Requirements. The subdivider shall submit the land study in accordance with the application form, requirements and checklist as adopted by the city. The land study shall be accompanied by a processing fee established by the city council. The land study must be prepared by an engineer and must provide all of the following information:

1. General arrangement of existing and proposed land uses, including, but not limited to, park and school sites, other public facilities, open space areas, floodplains and drainage ways. The land uses regulated by zoning must comply with both the location and layout as prescribed by the official adopted zoning map and zoning ordinance of the City of El Paso, unless a rezoning is proposed as part of the combined application;

2. The proposed density expressed in units per acre and population by land use. The proposed densities shown may not exceed those prescribed by the official adopted zoning map and zoning ordinance of the City of El Paso unless a rezoning is proposed as part of the combined application;

3. Proposed phasing of platting;

4. The proposed traffic circulation, layout, and width of all collector streets and arterial street

classifications. The proposed street layout must comply with the adopted thoroughfare plan for the City of El Paso as to location and size of roadways, unless an amendment to such plans is proposed as part of the combined application;

5. Traffic impact/capacity study to determine the capacity need, if any, for additional traffic lanes (e.g., acceleration, deceleration, or turning), signalization and other roadway or traffic mitigation improvements. The traffic impact/capacity study shall be prepared in accordance with standards provided by the city;

6. Conceptual drainage plan indicating existing and proposed major stormwater sewer facilities. The drainage plans shall indicate the phasing plans and approximate location of temporary and permanent easements and rights-of-way that will be needed to accommodate the phasing plan and to carry the storm drainage to its ultimate destination;

7. Layout and relationship of the proposed subdivision(s) to surrounding development, including the location, width, and names of all existing and platted streets, subdivisions, public ways, drainage channels, and other relevant features;

8. Existing and/or proposed zoning of the property and adjoining land;

9. Dimensions of the land study boundaries;

10. Existing contours of the tract in intervals appropriate to the topography as determined by the city manager, or designee, in accordance with the DSC and based on National Geodetic Vertical Datum (year to be specified on land study);

11. Existing major water and sanitary sewer facilities. (Ord. 16882 § 2 (part), 2008)

(Ord. No. 17396, § 3, 8-24-2010; Ord. No. 18971, § 2, 9-3-2019; Ord. No. 19243, §§ 5, 6, 10-12-2021)

19.02.030 Decision.

A. The city plan commission shall decide whether to approve, approve with conditions, or deny the land study application.

B. Prior to the decision, the city plan commission shall be provided with a full copy of the land study and all related documents that are needed to make a decision as to compliance with this title.

C. Where the city plan commission conditionally approves or disapproves a land study application, the city plan commission shall provide the applicant a written statement of the conditions for the conditional approval or reasons for disapproval that clearly articulates each specific condition for the conditional approval or reason for disapproval. Each condition or reason specified in the written statement must:

1. Be directly related to the requirements in Title 19 and specifications contained in the City of El Paso Street Design Manual (SDM); and

2. Include a citation to the law, including a statute or municipal ordinance, that is the basis for the conditional approval or disapproval; and

3. May not be arbitrary.

D. After the conditional approval or disapproval of the land study, the applicant may resubmit the land study along with a written response that clearly articulates how each condition for conditional approval or each reason for disapproval has been remedied.

E. The city plan commission shall determine whether to approve or disapprove the applicant's previously conditionally approved or disapproved land study within fifteen days of receipt of resubmission and written response.

F. It shall be the responsibility of the subdivider to ensure that the land study satisfies all the requirements of the city code, the SDM and any other regulatory requirement. (Ord. 16882 § 2 (part), 2008)

(Ord. No. 18971, § 3, 9-3-2019; Ord. No. 19327, § 3, 4-26-2022)

19.02.040 Criteria for approval.

A. Factors. The following criteria shall be used to determine whether an application for a land study shall be approved, approved with conditions, or denied:

1. The land study is consistent with all zoning requirements for the property, and any approved development agreement;

2. The proposed provision and configuration of arterial and collector roads, water, wastewater,

drainage and park and open space facilities are adequate to serve each phase of the subdivision and generally meet the standards of this title, the SDM and any other applicable standards or requirements of the city;

3. The schedule of development assures that the proposed development will progress to completion within the schedule proposed;

4. The proposed land study conforms to the district and is consistent with the incorporated concept plan, if any;

5. The location, size and sequence of the phases of development proposed assures orderly development of the land subject to the plat;

6. Where the proposed development is located in whole or in part in the extraterritorial jurisdiction of the city in El Paso County, the proposed land study meets any County of El Paso standards; and

7. The land study is consistent with the adopted comprehensive plan, except where application of the plan conflicts with state law.

B. Conditions. In addition to any other conditions required to conform the land study to the standards of this title, the city plan commission may condition approval on exclusion of land from the land study or adjustments in the proposed sequence or timing in the proposed phases of the development. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 17236, § 27, 11-10-2009; Ord. No. 18056, § 3, 8-6-2013; Ord. No. 19327, § 4, 4-26-2022)

19.02.050 Expiration and extension.

A. Time of Expiration.

1. Expiration of the land study shall be five years. Two extensions may be approved for a period of two years each by the CPC from the date a complete application is officially approved, unless otherwise governed by the schedule of development approved by the city plan commission. A land study for property of one thousand acres or more may be granted additional two-year extensions provided that a finding is made by the CPC that from the date that the prior two-year extension was granted, substantial progress has been made toward the completion of the development.

2. Expiration of a preliminary plat or final plat for any phase of the land study which has expired shall not change the approved phasing plan and all subsequent plats meet the approved plan unless otherwise approved by the CPC.

B. Extension. The expiration date for any phase of the development may be extended by the city plan commission under Chapter 19.41. Extension of the expiration date for the phase extends the expiration date for the land study for a like period. (Ord. 16882 § 2 (part), 2008)

19.02.060 Remainder tracts.

A. Definition. A remainder tract is that portion of a larger parcel that is not included within the boundaries of a land study or any type of plat. Remainder tracts shall not be considered lots or tracts of the subdivision. Approval of a plat shall not constitute approval of development on a remainder tract.

B. Information. Information accompanying a plat application for remainder tracts shall be deemed to be an aid to the city plan commission in taking action on the plat application and may be used to determine whether development of the land subject to the plat will be adequately served by public facilities and services and is otherwise in compliance with this title, taking into account the development of the property as a whole. Information concerning remainder tracts, including topography, drainage, and existing and planned public improvements, may be considered in formulating conditions to approve the plat application. Based upon such information, the city plan commission may require that additional or less land be included in the plat in order to satisfy the standards applicable to the plat application.

C. Approval. Approval of such remainder tract is conditioned on such remainder tract being suitable for development in the future and not making any other tracts undevelopable under current City of El Paso ordinances. (Ord. 16882 § 2 (part), 2008)

19.02.070 Revisions following approval of a land study.

A. Minor changes. The city manager or designee may deem a revision to be minor and may authorize the amendment administratively. An amendment shall be considered minor if the city manager or designee determines that it does not alter any of the following by more than ten percent: the arrangement of land use, acreage designated to land uses, density, open space areas, to include changes to any arroyos, relocate major circulation elements or alter the concept of the development.

B. Amendments.

1. At any time after approval of a land study and before submission of a final plat for any portion of the area contained within the approved land study, the subdivider may request that an amendment be made in the approval or approval with conditions of the land study.

2. An amendment not deemed minor by the city manager, or designee shall be reviewed and either approved, approved subject to conditions or disapproved by the city plan commission, following a staff recommendation, pursuant to the general procedures outlined in this chapter.

a. An amendment that alters the arrangement of land use, acreage designated to land uses, density, or open space areas, to include changes to any arroyos, by twenty-five percent or more is considered a new application.

b. An amendment that alters the arrangement of land use, acreage designated to land uses, density, or open space areas, to include changes to any arroyos, by more than ten percent but less than twenty-five percent is considered an amended application and has a reduced fee as determined by city council.

3. The amendment to the land study shall be submitted with the approved application form, required information and checklists and fees. It shall be processed in the same timeframe and manner as if it were a new land study application.

4. If a request for amendment to an approved land study occurs after submission of a final plat, the subdivider shall be required to file a new land study application for the entire area contained within the formerly approved land study. Amendments deemed minor by the city manager or designee, as defined in subsection A of this section, may be authorized administratively.

5. The revised land study application shall be subject to the subdivision regulations in effect at the time of resubmission, subject to the vesting provisions of Title 1, Section 1.04.070 of the City Code. (Ord. 16882 § 2 (part), 2008)

(Ord. No. 17251, § 2, 12-15-2009; Ord. No. 18056, § 4, 8-6-2013)

Chapter 19.03

PRELIMINARY PLATS

Sections:

19.03.010 Purpose, exceptions and effect.

19.03.020 Application and procedures.

19.03.030 Decision.

19.03.040 Criteria for approval.

19.03.050 Effect of approval of a preliminary plat.

19.03.060 Expiration and extension.

19.03.070 Revisions following approval of preliminary plat.

19.03.010 Purpose, exceptions and effect.

A. Purpose. The purpose of a preliminary plat shall be to determine the general layout of the subdivision, the adequacy of public facilities needed to serve the intended development and the overall compliance of the land division with applicable requirements of this title. The city will not require non-engineering related significant changes in the final subdivision improvement plans or final plat approval that contradict the preliminary plat approval, except it reserves the right to address life safety or other significant issues that the design engineer should have addressed in the preliminary plat.

B. Exceptions. A final plat in accordance with Chapter 19.04, along with final subdivision improvement plans in accordance with Chapter 19.08, may be submitted in lieu of a preliminary plat. The applicant, however, assumes all liability for costs and time delays created by the applicant not submitting a preliminary plat.

C. Effect. Approval of a preliminary plat shall authorize the subdivider to submit subdivision improvement plans for approval by the city manager, or designee under Chapter 19.08 and, upon approval of such plans, to construct public improvements to serve the subdivision in accordance therewith. Approval of a preliminary plat also shall authorize the subdivider to seek approval of a final plat for the land subject to the preliminary plat. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 17236, § 27, 11-10-2009; Ord. No. 17251, § 3, 12-15-2009)

19.03.020 Application and procedures.

A. Responsible Official and Initial Review. The city manager, or designee shall be the responsible official for a preliminary plat, and the staff shall be the initial reviewing body for a preliminary plat application.

B. Pre-Application Conference. Refer to Section 19.37.050 of Chapter 19.37.

C. Application Contents. All applications shall be submitted electronically or on a form supplied by the planning division with the required information as stated on the application form and the administrative submission requirements available in the planning division.

D. Preliminary engineering information in accordance with the SDM checklists meeting the submission requirements must also be submitted with the preliminary plat application.

E. Accompanying Applications. An application for a preliminary plat may be accompanied by an application for rezoning approval, including a request for a planned development district, or a land study application. The rezoning application and land study application shall be decided first, or the preliminary plat shall be approved subject to their approvals. Action in accordance with this title will be taken on the preliminary plat within thirty days.

F. Staff Review. The staff shall review each preliminary plat application to be placed on the agenda of the forthcoming meeting of the city plan commission. The staff shall recommend either:

1. Approval of the preliminary plat;
2. Denial of the preliminary plat;
3. Approval of the preliminary plat with conditions; or
4. Approval of the preliminary plat with recommendations regarding any exceptions provided for in this title.

G. Resubmittal Following Staff Review.

1. The applicant shall retain in his possession a copy of the original preliminary plat that was submitted for review by the staff.

2. At least eight days prior to the meeting of the city plan commission during which the preliminary plat is scheduled for action, the applicant shall provide to the city manager or designee copies of the preliminary plat meeting the submission requirements. The city manager or designee shall then review the preliminary plat for compliance with staff recommendations. (Ord. 16882 § 2 (part), 2008)

(Ord. No. 17236, §§ 2, 8, 11-10-2009; Ord. No. 17396, § 4, 8-24-2010; Ord. No. 18971, § 4, 9-3-2019; Ord. No. 19243, § 7, 10-12-2021; Ord. No. 19327, § 5, 4-26-2022)

19.03.030 Decision.

A. Review and Determination. The city plan commission shall review all preliminary plat applications, findings of the staff, findings of the city manager, or designee regarding compliance with staff recommendations, and any other information available. From all such information, the commission shall determine whether the preliminary plat as shown on the application meets the standards of this title.

B. Approval or Denial. The city plan commission shall decide whether to approve, approve with conditions, or deny the preliminary plat application within thirty days from determination that the application is complete in accordance with Section 19.37.020. The action of the commission shall be entered in the minutes of the commission and the applicant shall be notified of the results.

1. All changes or conditions required by the city plan commission as part of the preliminary plat approval shall be made a part of the record and any final plat or final subdivision improvement plans shall meet those required changes or conditions.

2. On a preliminary plat with significant changes, the city plan commission may at the time a preliminary plat is approved subject to conditions, require a revised preliminary plat to be resubmitted.

3. Where the city plan commission conditionally approves or disapproves a preliminary plat application, the city plan commission shall provide the applicant a written statement of the conditions for the conditional approval or reasons for disapproval that clearly articulates each specific condition for the conditional approval or reason for disapproval. Each condition or reason specified in the written statement must:

a. Be directly related to the requirements in Title 19 and specifications contained in the City of El Paso Street Design Manual (SDM); and

b. Include a citation to the law, including a statute or municipal ordinance, that is the basis for the conditional approval or disapproval; and

c. May not be arbitrary.

4. After the conditional approval or disapproval of the preliminary plat application, the applicant may resubmit the preliminary plat along with a written response that clearly articulates how each condition for conditional approval or each reason for disapproval has been remedied.

5. The city plan commission shall determine whether to approve or disapprove the applicant's previously conditionally approved or disapproved preliminary plat within fifteen days of receipt of resubmission and written response.

6. It shall be the responsibility of the subdivider to ensure that the preliminary plat satisfies all the requirements of the city code, the SDM and any other regulatory requirement. (Ord. 16882 § 2 (part), 2008)

(Ord. No. 17236, § 27, 11-10-2009; Ord. No. 18971, § 5, 9-3-2019; Ord. No. 19327, § 6, 4-26-2022)

19.03.040 Criteria for approval.

The following criteria shall be used to determine whether the application for a preliminary plat shall be approved, approved with conditions or denied:

A. The preliminary plat is consistent with any zoning requirements for the property, and any

approved development agreement, or is approved subject to any proposed zoning submitted concurrently;

B. The preliminary plat conforms to the general layout of the approved land study (with minor variations as described in Chapter 19.02), including any phasing plan approved therein;

C. The proposed provision and configuration of roads, drainage and other facilities generally conform to the city's adopted master plans for those facilities, including without limitation, transportation, drainage, and any other municipal plans, but are not required to exceed the development's proportional share;

D. The proposed provision and configuration of roads, drainage, park and open space facilities, easements, and rights-of-way are adequate to serve the subdivision and meet applicable standards of this chapter;

E. The preliminary plat meets any County of El Paso standards in accordance with Chapter 19.11, when the proposed development is located in whole or in part in the extraterritorial jurisdiction of the city and in the county;

F. The preliminary plat has been duly reviewed by applicable city staff, including the city manager or designee;

G. The preliminary plat conforms to the design requirements and construction standards as set forth in the City of El Paso Street Design Manual (SDM);

H. The preliminary plat is consistent with the adopted comprehensive plan, except where application of the plan conflicts with state law (e.g., land use); and

I. The preliminary plat is consistent with the parks and open space plan and the proposed provision of parks and open space and/or fees in lieu of dedication is in conformance to this and all other ordinances.

J. The preliminary plat complies with any exceptions approved by the CPC or any exceptions approved by the city council involving creating a future expenditure of money by the city.

K. An interim plat may be approved for property zoned SmartCode without reflecting the regulating plan, provided that the plat contains the following plat note: "This land is zoned SmartCode and a regulating plan has been approved. Prior to the issuance of any city permits, a plat reflecting the regulating plan must be approved and recorded." (Ord. 16882 § 2 (part), 2008)
(Ord. No. 17905, § 1, 11-6-2012; Ord. No. 19327, § 7, 4-26-2022)

19.03.050 Effect of approval of a preliminary plat.

A. Right to proceed. The approval of a preliminary plat application shall allow the applicant to proceed with the development and platting process by submitting subdivision improvement plans and a final plat. The city will not require non-engineering related significant changes in the final subdivision improvement plans or final plat approval that contradict the preliminary plat approval, reserving the right to address life safety or other significant issues that the city, the design engineer or other consultants working on behalf of the developer should have addressed in the preliminary plat.

B. Installation of subdivision improvements.

1. Approval of the preliminary plat by the city plan commission shall be deemed an approval of the layout illustrated on the preliminary plat as a guide to the installation of streets, water, wastewater, parks, open space, drainage infrastructure and other improvements that are planned or required within the proposed subdivision.

2. Approval of the preliminary plat shall not constitute approval of the proposed subdivision, nor shall approval of the preliminary plat be construed to mean acceptance by the public of the dedication of any roads, utilities, parks, open space, drainage ways, or other such land and improvements.

3. Construction of all subdivision improvements shall be based upon approved subdivision improvement plans, and shall occur either:

a. Prior to final plat approval and recordation but after the preliminary plat and all subdivision improvement plans for public improvements have been approved;

b. Following final plat and subdivision improvement plan approval but prior to recordation. If improvements are delayed beyond three years of the date of final plat approval, the developer must file security required in Section 19.08.040; or

c. Following final plat approval and recordation and the release of building permits for up to fifty percent of the residential lots, provided that: 1) the lots have water and sanitary sewer service and a letter of Conditional Acceptance issued by the El Paso Water Utilities; and, 2) the lots are contiguous and form a complete block face or block faces within the subdivision; and, 3) no Certificate of Occupancy shall be issued until a letter of Final Acceptance has been issued by the El Paso Water Utilities. Prior to the issuance of permits for more than fifty percent of the residential lots or prior to a request for a certificate of occupancy, the developer must submit required security in lieu of completing construction, in accordance with Section 19.08.040 of this title. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 18056, § 5, 8-6-2013)

19.03.060 Expiration and extension.

The approval of a preliminary plat application shall remain in effect for a period of three years from the date of approval by the city plan commission, during which period the applicant shall submit and receive approval for subdivision improvement plans and a final plat for the land subject to the preliminary plat. If subdivision improvement plans and a final plat application have not been approved within the three-year period, the preliminary plat application, unless extended in accordance with Chapter 19.41, shall expire and the preliminary plat shall be null and void. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 18056, § 6, 8-6-2013)

19.03.070 Revisions following approval of preliminary plat.

A. Submission allowed. Following the approval of a preliminary plat application, the applicant may resubmit a revised preliminary plat along with a resubmission fee in accordance with the adopted fee schedule.

B. Minor changes. Minor changes in the design of the subdivision subject to a preliminary plat may be incorporated in an application for approval of a final plat without the necessity for submittal of a new application for approval of a preliminary plat. Minor changes may include minor adjustments in street or alley alignments, lengths, and paving details; addition or exception of utility easements; adjustment of lot lines and similar minor changes that do not result in creation of additional lots, provided that such changes are consistent with any approved prior applications.

C. Amendments. All other proposed changes to the design of the subdivision subject to an approved preliminary plat shall be deemed major amendments that require submittal and approval of a new application for approval of a preliminary plat before approval of a combination or final plat. Approval of major revisions to an approved preliminary plat shall occur prior to the date any approved land study would have expired for the same land.

D. Determination. The city manager or designee shall make a determination of whether changes are deemed to be minor within ten days or shall require new submittal of a preliminary plat. (Ord. 16882 § 2 (part), 2008)

Chapter 19.04

FINAL PLAT

Sections:

19.04.010 Purpose, applicability, exceptions and effect.

19.04.020 Application and procedures.

19.04.030 Decision.

19.04.040 Criteria for approval.

19.04.050 Revisions to final plat.

19.04.060 Expiration and extension.

19.04.070 Plat recordation.

19.04.010 Purpose, applicability, exceptions and effect.

A. Purpose. The purpose of a final plat is to assure that the subdivision of the land subject to the plat is consistent with all standards of this title pertaining to the adequacy of public facilities, that public improvements to serve the subdivision or development have been installed and accepted by the city or that provision for such installation has been made, that all other requirements and conditions have been satisfied or provided for to allow the plat to be recorded, to assure that the subdivision meets all other standards of this title and to enable initiation of site preparation activities for any lot or tract subject to the final plat. The city will not require non-engineering related significant changes in the final subdivision improvement plans or final plat approval that contradict the preliminary plat approval, reserving the right to address life safety or other significant issues that should have been addressed in the preliminary plat.

B. Applicability. Construction of public improvements may occur prior to final plat approval if the requirements in Chapter 19.08 are met. Prior to submission of the final plat application for approval, the final subdivision improvement plans, including water and wastewater plans, even though provided by another design agency, other public utilities and storm drainage, must be submitted to the planning division. In order to construct public improvements prior to approval of the final plat, such plans, except water and wastewater when part of the EPWU or other water or wastewater system, must be reviewed and approved by the city manager, or designee. The city manager or designee may recommend that a final plat be approved subject to corrections being made to the final subdivision improvement plans.

C. Effect. Approval of a final plat shall authorize the subdivider to install any improvements in public rights-of-way with approved subdivision improvement plans and to seek approval of site preparation, building and other permits for any lot in the subdivision, in accordance with section 19.08.020. Approval also authorizes the recordation of the final plat in accordance with this title. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 17236, § 27, 11-10-2009; Ord. No. 17251, § 4, 12-15-2009; Ord. No. 17396, § 5, 8-24-2010)

19.04.020 Application and procedures.

A. Responsible Official. The city manager, or designee shall be the responsible official for a final plat, and the staff shall be the initial reviewing body for a final plat application.

B. Pre-Application Conference. Refer to Section 19.37.050.

C. Prior Approved Preliminary Plat. The final plat and all accompanying data shall conform to the preliminary plat as approved by the city plan commission, incorporating all approved exceptions and conditions. The final plat shall be prepared by a registered professional land surveyor.

D. Proof of Ownership. The applicant shall furnish with the application to the city a current title commitment issued by a title insurance company authorized to do business in Texas policy, a title opinion letter from an attorney licensed to practice in Texas or some other acceptable proof of ownership, identifying all persons having an ownership interest in the property subject to the plat. The final plat shall be signed (on the face of the plat in plain view) by each owner, or by the

representative of the owners authorized to sign legal documents for the owners, effectively denoting that they are consenting to the platting of the property and to the dedications and covenants that may be contained in the plat. Such consent shall be subject to review and approval by the city attorney.

E. Application Contents. All applications shall be submitted electronically or on a form supplied by the planning division with the required information as stated on the application form and the administrative submission requirements available in the planning division.

F. Staff Review. The staff shall review each final plat application to be placed on the agenda of the city plan commission. Staff shall recommend either:

1. Approval of the final plat;

2. Denial of the final plat; or

3. Approval of the final plat with conditions.

G. Resubmittal Following Staff Review.

1. The applicant shall retain in his possession the original final plat that was submitted for review by the staff.

2. At least eight days prior to the meeting of the city plan commission during which the final plat is scheduled for review, the applicant shall provide to the city manager, or designee a copy meeting submission requirements of the final plat, with revisions made based on staff comments and recommendations. The city manager or designee shall then review the final plat for compliance with staff recommendations. (Ord. 16882 § 2 (part), 2008)

(Ord. No. 17236, §§ 2, 8, 27, 11-10-2009; Ord. No. 17396, § 6, 8-24-2010; Ord. No. 18971, § 6, 9-3-2019; Ord. No. 19243, §§ 8, 9, 10-12-2021)

19.04.030 Decision.

A. Review and Determination. The city plan commission shall review all final plat applications, findings of the staff, findings of the city manager, or designee regarding compliance with staff recommendations, and any other information available. From all such information, the commission shall determine whether the final plat as shown on the application meets the standards of this title.

B. Approval or Denial. The city plan commission shall decide whether to approve, approve with conditions, or deny the final plat application. Upon approval of the final plat, the applicant shall correct and submit final plat copies to the city manager or designee so that required signatures can be obtained and recording completed. The reasons for any action taken by the commission, whether a final plat is approved, denied, or approved with conditions, shall be entered in the minutes of the commission.

1. All changes or conditions required by the city plan commission as part of the final plat approval shall be made a part of the record.

2. On a final plat with significant changes, the city plan commission may at the time a final plat is approved subject to conditions, require a revised final plat to be resubmitted.

3. Where the city plan commission conditionally approves or disapproves a final plat application, the city plan commission shall provide the applicant a written statement of the conditions for the conditional approval or reasons for disapproval that clearly articulates each specific condition for the conditional approval or reason for disapproval. Each condition or reason specified in the written statement must:

a. Be directly related to the requirements in Title 19 and specifications contained in the City of El Paso Street Design Manual (SDM); and

b. Include a citation to the law, including a statute or municipal ordinance, that is the basis for the conditional approval or disapproval; and

c. May not be arbitrary.

4. After the conditional approval or disapproval of the final plat application, the applicant may resubmit the final plat along with a written response that clearly articulates how each condition for conditional approval or each reason for disapproval has been remedied.

5. The city plan commission shall determine whether to approve or disapprove the applicant's

previously conditionally approved or disapproved final plat within fifteen days of receipt of resubmission and written response.

6. It shall be the responsibility of the subdivider to ensure that the final plat satisfies all the requirements of the city code, the SDM and any other regulatory requirement. (Ord. 16882 § 2 (part), 2008)

(Ord. No. 17236, § 27, 11-10-2009; Ord. No. 18971, § 7, 9-3-2019; Ord. No. 19327, § 8, 4-26-2022)

19.04.040 Criteria for approval.

The following criteria shall be used to determine whether the application for a final plat shall be approved, approved with conditions or denied:

A. The final subdivision improvement plans have been submitted and reviewed by the city manager, or designee. The final plat approval shall note:

1. Subdivision improvement plans are complete and approved by staff;

2. Subdivision improvement plans are complete and approved by staff subject to revisions;

3. Subdivision improvement plans are still being reviewed by staff and revised by the subdivider and the final plat's approval is still subject to the city manager or their designee's determination of the subdivision improvement plan's compliance with this and all other city ordinances and the city manager, or designee's approval of the subdivision improvement plans prior to submission of the final plat or issuance of building permits. Questions of interpretation of the ordinance or resolution of significant engineering issues shall be decided and included in the CPC's conditions.

B. Prior Approved Preliminary Plat.

1. The final plat conforms to the approved preliminary plat except for minor changes authorized under Chapter 19.03 or 19.04 of this article and that may be approved without the necessity of revising the approved preliminary plat;

2. All conditions imposed at the time of approval of the preliminary plat have been satisfied;

3. Where public improvements have been installed, the improvements conform to the approved subdivision improvement plans and have been approved for acceptance by the city manager or designee;

4. Where the city manager or designee has authorized public improvements to be deferred, the final plat may be approved, recorded and foundation or building permits may be issued, in accordance with Section 19.08.040;

5. The final layout of the subdivision or development meets all standards for adequacy of public facilities contained in this title and all other applicable city ordinances;

6. The final plat where the proposed development is located in whole or in part in the extraterritorial jurisdiction of the city and in the county meets the requirements in Chapter 19.11. The subdivider or their authorized representative will be responsible for making sure the final plan meets the County of El Paso Standards and is approved by the county;

7. The plat conforms to design requirements and construction standards as set forth in the City of El Paso Street Design Manual (SDM); and

8. The plat conforms to the subdivision application checklist and has been determined to be a complete application.

C. No Prior Approved Preliminary Plat.

1. The final plat conforms to all criteria for approval of a preliminary plat;

2. The subdivision improvement plans conform to the requirements of this title and all other ordinances;

3. Where the city manager or designee has authorized public improvements to be deferred, the final plat may be approved, recorded and foundation or building permits may be issued, in accordance with Section 19.08.040;

4. The final layout of the subdivision or developments meets all standards for adequacy of public facilities contained in Article 2 of this title;

5. The final plat where the proposed development is located in whole or in part in the extraterritorial jurisdiction of the city and in the county meets the requirements in Chapter 19.11. The subdivider or their authorized representative will be

responsible for making sure the final plan meets the County of El Paso Standards and is approved by the county;

6. The final plat conforms to the application checklist. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 17236, § 27, 11-10-2009; Ord. No. 19327, § 9, 4-26-2022)

19.04.050 Revisions to final plat.

A. Following Approval or Conditional Approval. An applicant may apply for modification of an approved or conditionally approved final plat to reflect changes listed below, provided that the approved final plat has not been recorded and that approval of the modified final plat occurs prior to expiration of approval of the initial final plat application.

1. Minor changes arising from the installation of public improvements after plat approval including easement additions and adjustments may be approved by the city manager or designee.

2. Minor changes including street name and addressing changes, dimension changes that do not substantially affect the street or lot layout or other similar minor changes and meet the requirements of this title may be approved by the city manager or designee.

3. Major revisions on final plats prior to recordation including those that substantially affect the street or lot layout shall be resubmitted as an amended final plat and will require re-approval by the CPC within the timeframes prescribed by this title.

4. If the approved final plat has been recorded, revisions may only be approved under Chapter 19.07, Revisions to Recorded Plats (Replatting) or Amending Plats, of this article.

B. After Denial. Following denial of a final plat or amending plat application, the applicant may submit a revised final plat or amending plat application, together with any revised subdivision improvement plans with a resubmission fee in accordance with the adopted fee schedule, for consideration by the city plan commission, provided that the revised application is approved prior to the original expiration date of any approved preliminary plat for the same land. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 17236, § 27, 11-10-2009)

19.04.060 Expiration and extension.

The approval of a final plat shall remain in effect for a period of three years from the date of approval by the city plan commission, during which period the applicant shall submit any required revisions for approval and record the plat. If the final plat has not been recorded within the three-year period, the final plat approval, unless extended in accordance with Chapter 19.41, shall expire and the applicable plat shall be deemed null and void. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 18056, § 7, 8-6-2013)

19.04.070 Plat recordation.

A. Procedure.

1. Signatures. After approval of the final plat, the city manager, or designee shall procure the signature of the chairperson of the city plan commission on the final plat ready for recording, the signature of the secretary of the city plan commission who shall attest to the signature of the chairperson, and the signature of the planning and inspections director.

2. Recording Upon Performance. The city manager or designee shall cause the final plat to be recorded with the appropriate county clerk upon the subdivider's or developer's performance of one of the following:

a. Completion of the construction of required improvements prior to recordation;

b. Where the city manager or designee has authorized public improvements to be deferred, the final plat may be approved, recorded and foundation or building permits for up to fifty percent of the residential lots may be issued in accordance with Section 19.08.040 and 19.08.020, provided that: 1) the lots have water and sanitary sewer service and a letter of Conditional Acceptance issued by the El Paso Water Utilities; and, 2) the lots are contiguous and form a complete block

face or block faces within the subdivision; and, 3) no Certificate of Occupancy shall be issued until a letter of Final Acceptance has been issued by the El Paso Water Utilities, or

c. Regardless of which option above, is chosen, subdivision improvement plans must be approved or conditionally approved in accordance with this chapter and Section 19.08.010 prior to plat recordation.

B. Timing of Recordation. The final signed copies of the plats for recordation will be recorded within ten days of the date that staff:

1. Received the final, approved, corrected recordation plat;

2. Received all fees, certificates and required documents for recording;

3. Determines that all other recording requirements have been met; and

4. Provided that the plat may be held for recordation until a date agreed upon with the subdivider if the final signed copies of the plats for recordation meeting the requirements of this title have been delivered to the city and all other recording requirements have been met.

C. Submittal of Record Plat Where Improvements Have Been Installed. Where public improvements have been installed and approved for acceptance by the city prior to recording of the plat, the property owner, developer or contractor shall submit a maintenance bond in accordance with Chapter 19.08 of this article from each contractor, one sealed set of "as built" plans in accordance with the SDM or record drawings (submitted as mylars), and an electronic copy of all plans (in a format as determined by the city manager or designee), together with a letter stating the contractors' compliance with Chapter 19.08 of this article, and bearing sealed certification by an engineer that all public improvements have been constructed in compliance with all city construction standards. The property owner also shall submit copies of the approved final plat, revised to reflect the "as built" plans or record drawings, in the format and number as required by the city manager or designee.

D. Submittal of Record Plat Where Improvements Have Hot Been Installed. Where public improvements have yet to be completed in connection with an approved final plat, the property owner shall submit in the format and number as set forth in the SDM, the approved final plat, revised to reflect any changes required by the city plan commission.

E. Update of Owner Consents. If there has been any change in the ownership prior to recordation of the approved final plat, the applicant shall furnish to the city an updated title policy commitment issued by a title insurance company authorized to do business in Texas, a title opinion letter from an attorney licensed to practice in Texas or some other proof of ownership, identifying all persons having an interest in the property subject to the plat. If there has been any change in the owners since the time of the owner consent agreement provided under Section 19.04.020, the final plat shall be signed (on the face of the plat in plain view) by each owner as of the date of submission, effectively denoting that they are consenting to the platting of the property and to the dedications and covenants that may be contained in the plat. Such consent shall be subject to review and approval by the city attorney. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 18056, § 8, 8-6-2013; Ord. No. 19243, § 10, 10-12-2021; Ord. No. 19327, § 10, 4-26-2022)

Chapter 19.05

DEVELOPMENT PLATS

Sections:

19.05.010 Purpose and effect.
19.05.020 Application and procedures.
19.05.030 Decision.
19.05.040 Criteria for approval.
19.05.050 Expiration and extension.
19.05.060 Plat recordation.

19.05.010 Purpose and effect.

A. Authority. This section is adopted pursuant to Texas Local Government Code, Chapter 212, Subchapter B, Section 212.041 to 212.050.

B. Purpose. The purpose of a development plat is to ensure the adequacy of public facilities needed to serve the intended development and to promote the health, safety, morals, or general welfare of the city and the safe, orderly and healthful development of the city.

C. Applicability. For purposes of this chapter, the term "development" means new construction or the enlargement of any exterior dimension of any building, structure, or any improvement whether located within the city or within its extraterritorial jurisdiction. A development plat is required for:

1. The development of any tract or parcel of land which has not been platted or replatted prior to the effective date of this ordinance, unless expressly exempted under paragraph D. below; or

2. The development of any parcel or tract of land for which the only access is a private easement or street; or

3. The division of any tract or parcel of land resulting in parcels or lots each of which is greater than five acres in size, and where no public improvement is proposed to be dedicated or constructed and development of the land is proposed.

D. Exceptions. A development plat is not required:

1. If a person is required under this title to file a subdivision plat, a development plat is not required in addition to the subdivision plat; or

2. For bona fide agricultural activities; or

3. For construction of agricultural accessory structures and related agricultural development activities; or

4. When an exception is granted in accordance with Section 19.01.010 C.2. or 19.01.030.

5. For water and wastewater utility infrastructure and stormwater facilities constructed by the city.

E. Effect. Approval of a development plat shall authorize the subdivider to seek approval of installation of any improvements in public rights-of-way in accordance with approved subdivision improvement plans, seek approval to site preparation, building and other permits for any lot in the subdivision, in accordance with Section 19.08.020. Approval also authorizes the recordation of the development plat in accordance with this title.

F. Prohibition on development. No development shall commence, nor shall the city issue any building permit, utility connection permit, electrical connection permit or similar permit for any development until a development plat, or if applicable a subdivision plat, has been approved by the city plan commission and submitted to the city for filing and recorded with the County of El Paso. (Ord. No. 17561, § 8, 5-17-2011; Ord. No. 17905, § 2, 11-6-2012)

19.05.020 Application and procedures.

A. Responsible official. The city manager, or designee shall be the responsible official for a development plat, and the staff shall be the initial reviewing body for a development plat.

B. Application Contents. All applications shall be submitted electronically or on a form supplied by the planning division with the required information as stated on the application form and the administrative submission requirements available in the planning division. Information required shall be the same as required for a final plat. In addition to this information, a development plat shall:

1. Be prepared by a registered professional land surveyor as a boundary survey showing:

a. Each existing and/or proposed building, structure, or improvement or proposed modifica-

tion of the external configuration of the building, structure, or improvement involving a change of the building, structure, or improvement;

b. Each easement and right-of-way within or abutting the boundary of the surveyed property;

c. The dimensions of each street, sidewalk, alley, square, park, or other part of the property intended to be dedicated to public use or for the use of purchasers or owners of lots fronting on or adjacent to the street, sidewalk, alley, square, park, or other part; and

d. Be accompanied by the required number of copies of the development plat, a completed application form, the required submission fee (per the city's current fee schedule), and all related documents meeting the requirements in the development plat submission checklist. A copy of all the above application materials for a development plat shall be simultaneously submitted to the planning division for review in the same manner as for a final plat, or the application shall be deemed incomplete in accordance with Section 19.01.05.

C. Procedure. The application and review procedure for a development plat shall be submitted to the city in the same manner as a final plat (see Chapter 19.04).

(Ord. No. 17561, § 8, 5-17-2011; Ord. No. 19243, § 11, 10-12-2021)

19.05.030 Decision.

The city plan commission shall decide whether to approve, approve with conditions, or deny the development plat application in the same manner as a final plat. The action of the commission shall be entered in the minutes of the commission and the applicant shall be notified of the results. Upon approval of the development plat, the applicant shall correct and submit final development plat copies to the city manager or designee so that required signatures can be obtained and the development plat recorded. If any conditions are attached to the commission's approval, the final development plat copies shall be so corrected prior to signature by any city official.

(Ord. No. 17561, § 8, 5-17-2011)

19.05.040 Criteria for approval.

A. The following criteria shall be used to determine whether the application for a development plat shall be approved, approved with conditions, or denied:

1. The development plat is consistent with the city's comprehensive plan, any applicable zoning requirements for the property, and any approved development agreement;

2. The development plat conforms to the general layout of the approved land study, if any, and is consistent with the phasing plan approved therein;

3. The proposed provision and configuration of roads, water, wastewater, drainage and park and open space facilities are adequate to serve the development and meet the standards of this chapter;

4. Public and/or private (if approved) easements or rights-of-way for all public water, wastewater, roadway and drainage facilities or other public utilities have been designated;

5. The ownership, maintenance, and allowed uses of all designated easements have been stated on the development plat.

6. The development plat complies with the applicable provisions of Article 2 of this title.

7. The development plat where the proposed development is located in whole or in part in the extraterritorial jurisdiction of the city and in the county meets the requirements in Chapter 19.11 and any County of El Paso standards and is approved by the county.

(Ord. No. 17561, § 8, 5-17-2011)

19.05.050 Expiration and extension.

The approval of a development plat shall remain in effect for a period of two years from the date of approval by the city plan commission, during which period the applicant shall submit any required revisions required for the recordation of the development plat. If the development plat has not been recorded within the two-year period, the development plat approval, unless extended in

accordance with Chapter 19.41, shall expire and the applicable development plat shall be deemed null and void.
(Ord. No. 17561, § 8, 5-17-2011)

19.05.060 Plat recordation.

Procedure. The development plat shall be filed and recorded at the County of El Paso by the city in the same manner as prescribed for a final plat (see Chapter 19.04).
(Ord. No. 17561, § 8, 5-17-2011)

Chapter 19.06

MINOR PLATS

Sections:

19.06.010 Purpose, applicability and effect.

19.06.020 Application and procedures.

19.06.030 Decision.

19.06.040 Criteria for approval.

19.06.050 Expiration.

19.06.060 Recordation.

19.06.010 Purpose, applicability and effect.

A. Purpose. The purpose of a minor plat is to simplify divisions of land under certain circumstances outlined in state law.

B. Applicability. An application for approval of a minor plat may be filed only when all of the following conditions are met:

1. The proposed division results in four or fewer lots;

2. All lots in the proposed subdivision front onto an existing public street and the construction or extension of a street or alley is not required to meet the requirements of this title or any other ordinance; and

3. The plat does not require the extension of any municipal facilities to serve any lot within the subdivision, however, right-of-way widening and easements shall be permitted as part of a minor plat.

C. Effect. Approval of a minor plat authorizes the recordation of the final plat in accordance with this title. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 17236, § 27, 11-10-2009; Ord. No. 17251, § 5, 12-15-2009)

19.06.020 Application and procedures.

A. Responsible Official. The city manager, or designee, shall be the responsible official for a minor plat.

B. Application Contents. All applications shall be submitted electronically or on a form supplied by the planning division with the required information as stated on the application form and the administrative submission requirements available in the planning division. The minor plat document shall be prepared by a registered professional land surveyor. The applicant shall submit a combined plat (preliminary/final) of the minor subdivision application.

C. Pre-Application Conference. Prior to the official submission of a minor plat application, the applicant(s) may request a pre-application conference with the city manager, or designee and any other pertinent city official(s). Such conference is optional, and before it is convened a vested rights waiver shall be submitted in accordance with Section 19.37.050.

D. Accompanying Applications. An application for approval of a minor plat may be accompanied by an application for approval of a site preparation, building and other permits for the land subject to the plat, provided that the minor plat shall be decided prior to decision on any permit. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 17236, § 2, 11-10-2009; Ord. No. 17251, § 5, 12-15-2009; Ord. No. 17396, § 7, 8-24-2010; Ord. No. 19243, § 12, 10-12-2021)

19.06.030 Decision.

A. Final Approval. The city manager, or designee, is authorized to approve a minor plat provided such plat meets all requirements of this chapter. Each minor plat must be approved, approved subject to conditions or denied within thirty days of a finding of completeness unless the owner of the property provides a waiver of right to thirty-day action. Review, approval, and recording of minor plats shall be in accordance with procedures set forth for final plats in Chapter 19.04 of this article. Appeal of the city manager or designee's decision shall be to the city plan commission at the next available meeting. The commission may approve, approve with conditions or deny such appeal based on its findings concerning meeting the requirements of this title.

B. Deemed Approved. If the city manager, or designee fails to act on a minor plat application within thirty days, the minor plat application shall

be deemed approved. (Ord. 16882 § 2 (part), 2008)

19.06.040 Criteria for approval.

The city manager, or designee, shall approve, conditionally approve or deny the minor plat application based upon the following criteria:

A. The minor plat is consistent with all zoning requirements for the property, all other requirements of this title that apply to the plat, all city ordinances and any approved development agreement;

B. All lots to be created by the plat already are adequately served by all required city utilities and services;

C. The ownership, maintenance, and allowed uses of all designated easements have been stated on the minor plat; and

D. The plat does not require the extension of any municipal facilities to serve any lot within the subdivision. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 17236, § 27, 11-10-2009)

19.06.050 Expiration.

The approval of a minor plat application shall remain in effect for a period of two years from the date of approval by the city manager or designee. If the minor plat has not been recorded within the two-year period, the minor plat approval, unless extended in accordance with Chapter 19.41, shall expire and the applicable plat shall be deemed null and void. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 18627, § 2, 2-7-2017)

19.06.060 Recordation.

The property owner shall submit the approved minor plat, incorporating any required revisions, to the city manager, or designee, who shall cause the minor plat to be recorded in the property records of the county. (Ord. 16882 § 2 (part), 2008)

Chapter 19.07

REVISIONS TO RECORDED PLATS

Sections:

19.07.010 General requirements for plat revisions.

19.07.020 Replats without vacation.

19.07.030 Special replat requirements.

19.07.040 Amending plats.

19.07.050 Plat vacation.

19.07.010 General requirements for plat revisions.

A. Applicability and Terminology.

1. The procedures in this chapter shall apply only if a property owner seeks to change any portion of a plat that has been filed of record with the county including a note or restriction on the face of the plat. If a property owner files an amending plat or a minor plat to make such changes, and does not violate the notice provisions for replats contained in Texas Statutes and in this chapter, a replat is not required.

2. The term "replat" includes changes to a recorded plat, restriction or covenant, whether the change is effected by vacating the recorded plat and approval of a new plat application, replatting without vacation, or approving an amended plat.

B. City Action Required for Replats. Except as expressly stated otherwise in this chapter, any change to a recorded plat or a portion of a plat that has been filed for record including a note or restriction shown on the face of a plat shall be subject to approval by the city plan commission. The requirements and procedures for approval of such changes to a recorded plat shall be in accordance with the requirements and procedures for a final plat application under Chapter 19.04 of this article. A replat of four or fewer lots may be administratively approved as if it were a minor plat, in accordance with Chapter 19.06 provided public hearings and notice are not required.

C. Construction Management. If a replat requires construction of additional improvements, the provisions of Chapter 19.08 of this article shall apply.

D. Responsible Official. The city manager, or designee shall be the responsible official for a replat, and the staff shall be the initial reviewing body for a replat application. (Ord. 16882 § 2 (part), 2008) (Ord. No. 18971, § 8, 9-3-2019)

19.07.020 Replats without vacation.

A. Applicability. A replat of all or a portion of a recorded plat may be approved without vacation of the recorded plat, if:

1. The replat is signed and acknowledged by only the owners of the property being replatted;

2. Is approved by the city plan commission; and

3. The replat does not propose to amend or remove any covenants or restrictions previously incorporated in the recorded plat.

B. Application. The application for a replat of a subdivision shall meet all application requirements of a final plat.

C. Partial Replat Application. Any replat which adds or reduces lots must include the original subdivision and lot boundaries. If a replat is submitted for only a portion of a previously platted subdivision, the replat must reference the previous subdivision name and recording information, and must state on the replat the specific lots which have changed along with a detailed "Purpose for Replat" statement.

D. Criteria for Approval. The replat of the subdivision shall meet all review and approval criteria for a final plat. The replat document shall be prepared by a registered professional land surveyor.

E. Effect. Upon approval of the application, the replat may be recorded and is controlling over the previously recorded plat for the portion replatted. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 18971, § 9, 9-3-2019)

19.07.030 Special replat requirements.

A. Applicability. In addition to compliance with the requirements of Section 19.07.020 above, a replat without vacation of the preceding plat must conform to the requirements of this chapter if:

1. During the preceding five years, any of the area to be replatted was limited by an interim or permanent zoning classification to residential use for not more than two residential units per lot; or

2. Any lot in the preceding plat was limited by deed restrictions to residential use for not more than two residential units per lot.

B. Procedure after approval. If a proposed replat described by subsection A above does not require a variance or exception, the responsible official, not later than the fifteenth day after the date the replat is approved, provide written notice by mail of the approval of the replat to each owner of a lot in the original subdivision that is within two hundred feet of the lots to be replatted according to the most recent municipality or county tax roll.

1. The notice of a replat approval must include the zoning designation of the property after the replat and a telephone number and the responsible official's e-mail address an owner of a lot may use to contact about the replat.

2. This requirement for written notice does not apply to a proposed replat if the city plan commission held a public hearing, in accordance with Chapter 19.39, and proper notice, in accordance with Section 19.38.020, was given.

C. Variance or Exception. If a proposed replat described by subsection A above requires a variance or exception, a public hearing must be held by a city plan commission, in accordance with Chapter 19.39, and published and personal notices in accordance with Chapter 19.38 must be provided. Personal notice shall be accompanied by a copy of the language of subsection D below.

D. Protest. If the replat application is accompanied by a variance petition and is protested in accordance with this subsection, approval of the replat shall require the affirmative vote of at least three-fourths of the members of the city plan commission present at the meeting. For a legal protest, written instruments signed by the owners of at least twenty percent of the area of the lots or land immediately adjoining the area covered by the replat application and extending two hundred feet from that area, but within the original subdivision, must be filed with the commission prior to the close of the public hearing. In computing the percentage of land area under this chapter, the area of streets and alleys shall be included.

E. Additional. The requirements of subsection D shall not apply to any approval of a replat application for a portion of a recorded plat if all of the proposed area sought to be replatted was designated or reserved for usage other than for single- or two-family residential usage. Such designation must be noted on the recorded plat or in the legally recorded restriction applicable to such plat. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 18971, § 10, 9-3-2019)

19.07.040 Amending plats.

A. Purpose. The purpose of an amending plat shall be to provide an expeditious means of making minor revisions to a recorded plat consistent with provisions of state law.

B. Applicability. The procedures for amending plats shall apply only if the sole purpose of the amending plat is to achieve the following:

1. Correct an error in a course or distance shown on the preceding plat;

2. Add a course or distance that was omitted on the preceding plat;

3. Correct an error in a real property description shown on the preceding plat;

4. Indicate monuments set after the death, disability, or retirement from practice of the engineer or surveyor responsible for setting monuments;

5. Show the location or character of a monument that has been changed in location or character or that is shown incorrectly as to location or character on the preceding plat;

6. Correct any other type of scrivener or clerical error or omission previously approved by the municipal authority responsible for approving plats, including lot numbers, acreage, street names, addresses and identification of adjacent recorded plats;

7. Correct an error in courses and distances of lot lines between two adjacent lots if:

a. Both lot owners join in the application for amending the plat,

b. Neither lot is abolished,

c. The amendment does not attempt to remove or modify recorded covenants or restrictions or easements, and

d. The amendment does not have a material adverse effect on the property rights of the owners in the plat;

8. Relocate a lot line to eliminate an inadvertent encroachment of a building or other improvement on a lot line or easement;

9. Relocate one or more lot lines between one or more adjacent lots if:

a. The owners of all those lots join in the application for amending the plat,

b. The amendment does not attempt to remove or modify recorded covenants or restrictions or easements, and

c. The amendment does not increase the number of lots;

10. Make necessary changes to the preceding plat to create six or fewer lots in the subdivision or a part of the subdivision covered by the preceding plat if:

a. The changes do not affect compliance with applicable zoning and other regulations of the city,

b. The amendment does not attempt to remove or modify recorded covenants or restrictions or easements, and

c. The area covered by the changes is located in an area that the city council has approved, after a public hearing, as a residential improvement area; or

11. Replat one or more lots fronting on an existing street if:

a. The owners of all those lots join in the application,

b. The amendment does not attempt to remove recorded covenants or restrictions,

c. The amendment does not increase the number of lots, and

d. The amendment does not create or require the creation of a new street or make necessary the extension of municipal facilities.

C. Effect. Upon approval by the city manager, or designee, an amending plat may be recorded and is controlling over the recorded plat without vacation of that plat.

D. Application Contents. All applications shall be submitted electronically or on a form supplied by the planning division with the required information as stated on the application form. The amending plat document shall be prepared by a registered professional land surveyor.

E. Decision. The city manager or designee shall either approve, approve with conditions, or deny the application for an amending plat within ten days.

F. Expiration. Approval of an amending plat shall expire if the plat is not submitted for recordation within the time period specified for recordation of a final plat.

G. Additional. Notice, a hearing, and the approval of other lot owners are not required for the approval and issuance of an amending plat. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 17236, § 2, 11-10-2009; Ord. No. 17251, § 6, 12-15-2009; Ord. No. 17396, § 8, 8-24-2010; Ord. No. 18971, § 11, 9-3-2019; Ord. No. 19243, § 13, 10-12-2021)

19.07.050 Plat vacation.

A. Applicability. A plat vacation application must be approved by the city plan commission prior to vacation of any recorded plat or portion thereof. A plat may be vacated only in conjunction with approval of a new plat application.

B. Application. If no lot subject to the recorded plat has been sold, the property owner may apply for a plat vacation. If any lot in a subdivision has been sold, the recorded plat or any portion thereof may be vacated only upon application of all lot owners in the subdivision. A plat vacation application shall be accompanied by an application for a land study, preliminary plat, or final plat for the land subject to the recorded plat or portion thereof to be vacated, prepared in accordance with this article. A plat vacation application also shall be accompanied by an unconditional waiver of right to thirty-day action (mandated by the state for general approval of plats) for the plat vacation application, pending approval of a new final plat application for the same land.

C. Processing and Decision. The plat vacation application shall be decided by the city plan commission in conjunction with its decision on a new plat application for the same land. The application for plat vacation shall be processed together with the new plat application in accordance with the procedures applicable to the new plat application under this article. If the new plat application is for a land study or preliminary plat, decision on the plat vacation application shall be deferred or conditioned on approval of a final plat application for the land subject to the recorded plat or portion thereof to be vacated. The commission shall decide the plat vacation application after it decides the final plat application.

D. Criteria. The city plan commission shall approve the plat vacation application upon approving the final plat application for the same land, and shall deny the plat vacation application upon denial of such final plat application. The final plat application, as well as any preceding land study or preliminary plat application, shall be decided in accordance with the criteria applicable to such applications under this article.

E. Effective Date of Plat Vacation. The plat is vacated when a signed, acknowledged instrument declaring the plat vacated is approved and recorded in the manner prescribed for the original plat. On the execution and recording of the vacating instrument, the vacated plat shall have no further effect. (Ord. 16882 § 2 (part), 2008)

Chapter 19.08

CONSTRUCTION PLANS AND MANAGEMENT

Sections:

19.08.010 Subdivision improvement plans.

19.08.020 Timing of public improvements, permit issuance.

19.08.030 Completion of necessary public improvement extension.

19.08.040 Security for completion of improvements.

19.08.050 Inspection and acceptance of public improvements.

19.08.060 Maintenance and warranty of improvements.

19.08.010 Subdivision improvement plans.

A. Purpose. The purpose of subdivision improvement plans is to assure that public improvements required to be installed in order to serve a subdivision or a development are constructed in accordance with all standards of this title.

B. Application Contents. When required by this title either prior to or at the time of submission of an application for final plat approval by the city plan commission or by staff where administrative approval is authorized, the number of sets of subdivision improvement plans required by the SDM shall be submitted to the city manager or designee for review for code compliance. All applications shall be submitted on a form supplied by the planning official with the required information as stated on the application form. The subdivision improvement plans shall be submitted for the entire area covered by the subdivision application, and shall comply with all provisions of this title and the SDM. The final subdivision improvement plans including paving and stormwater engineering shall be submitted in one package and be approved or approved with conditions prior to the final plat recordation in accordance with this title. The subdivider shall provide and the subdivision improvement plans shall contain all applicable improvements required by this title and the SDM, including but not limited to the following details:

1. Grading and slope stabilization as regulated by Chapter 18.44:
2. Drainage facilities;
3. Water and wastewater plans, except water and wastewater plans in developments to be served by EPWU, which shall comply with subsection C below;
4. Streets and other rights-of-way (including sidewalks); on subdivisions within the city limits, sidewalks may be deferred until building permits are requested for a residential lot, except sidewalks at the rear of double frontage lots must be installed, inspected, approved and accepted by the city prior to building permits being issued;
5. Bikeway and transit improvements (where applicable);
6. Survey monuments;
7. Street lights;
8. Traffic control signs and traffic signalization; traffic calming devices (where applicable);
9. Landscaping; on subdivisions within the city limits, landscape (street trees) may be deferred until building permits are requested for a residential lot, except landscape at the rear of double frontage lots must be installed, inspected, approved and accepted by the city prior to building permits being issued;
10. Curb ramps; on subdivisions within the city limits, curb ramps may be deferred until building permits are requested for a residential lot, except curb ramps at the rear of double frontage lots must be installed, inspected, approved and accepted by the city prior to building permits being issued;
11. Street pavement markings;
12. Parkland and open space; and
13. Provisions for arroyo protection.

It is the developer and his engineer's responsibility to put the plans together into one package and follow-up on their review. Incomplete plans shall be returned to the applicant.

C. The subdivider shall provide complete EPWU approved water and wastewater design plans on or before the final plat is submitted to the CPC. The subdivider shall have the option of using one of two processes for completion of the plans:

1. EPWU prepares complete water and wastewater plans meeting EPWU requirements and standards.

2. The subdivider's engineer prepares water and wastewater plans meeting TCEQ and EPWU requirements and submitting those plans to EPWU for approval. Upon approval by EPWU the water and wastewater plans shall be provided to the city. The EPWU shall have fifteen business days to accept the plans or reject the plans with comments for corrections. Failure to act within this timeframe shall permit the subdivider to proceed in accordance with Section 19.08.010(E)(3). This option to the subdivider shall not apply if any off-site extension or capital improvement infrastructure, master plan land studies, or any on-site oversized facilities to serve any areas adjacent to the subdivision are required.

3. Plans will not be approved and the plat will not be recorded until water and wastewater designs meet TCEQ and EPWU/PSB design standards.

D. Phasing Plan. Where phasing is proposed for the construction and installation of the required subdivision improvements, approval of a phasing plan shall be required, provided, that all of the subdivision improvements are completed within the time period specified herein. The city manager or designee may approve, disapprove or conditionally approve the phasing proposed if the proposed phasing will provide for the orderly development of the subdivision with adequate access to all improvements. No phasing plan shall be approved unless each phase has a complete drainage system, or security for all improvements that are not completed in the initial phase is provided in accordance with the methods and amount in Section 19.08.040 A. 1., 2., or 3. No temporary drainage structures will be allowed. If the property contains an arroyo or flow path that requires improvements, security in accordance with the methods and amounts stated in Section 19.08.040 shall be provided regardless of the phasing, unless the improvements to the arroyo or flow path are completed in the initial phase. Where the city manager or designee disapproves a phasing plan, the subdivider may appeal the decision to the city plan commission upon a written request submitted to the city manager or designee. Whether or not the city manager or designee approves phasing at the time of the construction plan submission, a subdivider may request phasing and submit a phasing plan at any time prior to the expiration of the time period for completion of the subdivision improvements, or any authorized extension. A phasing plan submitted and approved by the city manager or designee after the approval of the construction plan submission, shall be considered an authorized amendment to the subdivision improvement plans and such approved phasing plan shall be attached to and incorporated as part of the approved subdivision improvement plans.

E. Responsible Official and Decision.

1. The city manager, or designee, shall be the responsible official for approval of subdivision improvement plans.

2. For subdivision improvement plans submitted following approval of a preliminary plat, the city manager, or designee shall provide the applicant or applicant's representative a determination of completeness as specified in Section 19.37.020.

3. The city manager, or designee shall decide whether to approve, approve with conditions, or deny the subdivision improvement plan application within thirty days from determination that the application is complete in accordance with Section 19.37.020.

4. Failure of the city manager or designee or EPWU, when applicable, to approve, approve with conditions, or deny the subdivision improvement plan application within the prescribed thirty days from the date that the submission is accepted for completeness, shall permit the subdivider to pro-

ceed with the construction of the subdivision improvements pursuant to the plans submitted; except that a subdivider may authorize in advance, or during the review, an extension to the prescribed time period for additional review by the city manager or designee or EPWU, when applicable. The request for a time extension may be for a period not to exceed thirty days and shall be provided in writing by a subdivider prior to the expiration of the prescribed review period. It shall be the responsibility of the subdivider to ensure that the subdivision improvement plans meet or exceed all the requirements of the city code, EPWU requirements and any other regulatory requirements.

5. Distribution and Review. Once the subdivision improvement plans are approved, the property owner shall provide additional sets of the approved plans to the city, as specified by the city manager, or designee, for use during construction. A full set of the city approved and stamped subdivision improvement plans must be available for inspection on the job site at all times.

F. Notification. The city manager, or designee, shall notify the applicant in accordance with Section 19.38.040 that the subdivision improvement plans are approved for construction. The city manager or designee shall also forward a written certification to all affected departments and agencies advising of the approval of the subdivision improvement plans. The certification shall identify the subdivision name, legal description, and acreage for which the approval was granted.

G. Revised Plan Submission. In cases of conditional approval or disapproval of the subdivision improvement plan application, the process is as follows:

1. The city manager or designee shall provide the applicant a written statement of the conditions for the conditional approval or reasons for disapproval that clearly articulates each specific condition. Each condition or reason specified in the written statement must;

a. Be directly related to the requirements in Title 19 and specifications contained in the City of El Paso Street Design Manual (SDM); and

b. Include a citation to the law, including a statute or municipal ordinance, that is the basis for the conditional approval or disapproval; and

c. May not be arbitrary.

2. If the conditions of approval or disapproval of the plans require revision(s) to the subdivision improvement plans, one set shall be marked with objections noted (on the plans themselves) and returned to the applicant for correction.

3. The applicant's engineer shall then correct the plans as requested and resubmit the appropriate number of sets required by the SDM of subdivision improvement plans to the city manager or designee for decision. The resubmission or the plans shall be accompanied by a written response that clearly articulates how each condition for conditional approval or each reason for disapproval has been remedied.

4. The city manager or designee shall determine whether to approve or disapprove the applicant's previously conditionally approved or disapproved subdivision improvement plans within fifteen days of receipt of resubmitted plans and written response. Failure of the city manager or designee to approve or disapprove within the prescribed period, shall permit the subdivider to proceed with the construction of the subdivision improvement plans pursuant to the plans submitted. It shall be the responsibility of the design engineer to certify and ensure that the subdivision improvement plans satisfy all the requirements of the city code, the SDM and any other regulatory requirement.

5. A copy of any subdivision improvement plans submitted within the extraterritorial jurisdiction, after approval by the city manager or designee, shall be forwarded to the county road and bridge administrator.

6. Additional copies may be requested by the city manager or designee for informational purposes and review by other agencies.

7. The city will not require non-engineering related significant changes in the final subdivision improvement plans or final plat approval that contradict the preliminary plat approval, reserving

the right to address life safety or other significant issues that should have been addressed in the preliminary plat.

H. Criteria for Approval. The city manager, or designee, shall render a decision on the subdivision improvement plans in accordance with the following criteria:

1. The plans are consistent with the approved preliminary plat, and the proposed final plat;

2. The plans conform to the development standards, and standards for adequate public facilities contained in this title; and

3. The plans conform to the specifications contained in the City of El Paso Street Design Manual (SDM).

I. Approval Required. Approval of subdivision improvement plans authorizes the property owner to install public improvements in rights-of-way and/or easements offered for dedication or previously dedicated to the public under an approved preliminary or final plat for which site preparation and other required permits have been approved.

J. Acceptance Required. Acceptance of the subdivision improvements shall authorize the recording plat submission pursuant to this title. Where the city manager or designee has authorized public improvements to be deferred, the final plat may be approved, recorded and foundation or building permits may be issued, in accordance with Section 19.08.040.

K. If the city is unable to comply with the time requirements specified in this chapter due to unforeseeable causes beyond the control and without the fault or negligence of the city, including, but not restricted to, acts of God, or of the public enemy, fires, floods, epidemics, quarantine restrictions, strikes, orders of any kind of the government of the United States or the State of Texas, operation of law, disturbances, explosions and severe weather, such time restrictions shall be suspended until such time that the inability to perform due to the unforeseeable cause no longer exists. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 17236, §§ 11, 28, 11-10-2009; Ord. No. 17396, § 9, 8-24-2010; Ord. No. 17811, § 1, 6-5-2012, eff. 6-11-2012; Ord. No. 17905, § 4, 11-6-2012; Ord. No. 18056, § 9, 8-6-2013; Ord. No. 18971, § 12, 9-3-2019; Ord. No. 19327, § 11, 4-26-2022)

19.08.020 Timing of public improvements, permit issuance.

A. Completion Prior to Final Plat. Except as provided below, after approval of a preliminary plat and before an approved final plat is recorded, the installation of all public improvements required to serve the subdivision, whether to be located off-site or on-site, including water, wastewater, drainage, roadway, park and open space improvements, shall be finally completed and accepted in accordance with the approved subdivision improvement plans.

1. Park and open space improvements in this instance refer to public parks and public open space being constructed as part of the development by the developer.

2. If the development is being constructed in phases, and is platted in phases, park and open space improvements shall be completed as phases are constructed.

3. The installation of improvements required for proper drainage and prevention of soil erosion on individual residential lots, and improvements on any common areas shall be completed prior to final plat recordation in accordance with the approved subdivision improvement plans, except as provided below.

B. Installation After Final Plat Recordation. The city manager, or designee, upon request of the applicant, may defer the obligation to install one or more public improvements to serve the subdivision for a period of up to three years after final plat approval. Deferral of the obligation to install public improvements for more than three years after final plat approval shall be conditioned on sufficient security as required in Section 19.08.040.

C. Off-Site Easements. All off-site easements required for installation of off-site public improvements to serve the subdivision or development shall be acquired by the subdivider or developer and conveyed by an instrument in a form approved by the city attorney or the EPWU for water and wastewater easements.

D. Permit Issuance.

1. Grading Permits. Any grading within the corporate limits or within the extraterritorial jurisdiction shall conform to the applicable portions of Chapter 18.44 (Grading) of this Code. Properties not required to file a subdivision application pursuant to this title shall only be subject to the requirements of Chapter 18.44.

a. Borrow or waste permit. A borrow or waste permit shall be issued by the city manager or designee pursuant to the requirements of Chapter 18.44.

2. Building Permits.

a. Plat recordation prior to issuance of permits: Whenever a subdivision is required by this title, no building permit shall be issued for any lot until the subdivision has been recorded and the requirements of Title 18 (Building and Construction) of this Code have been satisfied, except on industrial, commercial and multi-family developments, foundation or building permits may be issued by the building official prior to the plat being filed if:

i. On lots with only one industrial or commercial building, improvement plans for the subdivision have been reviewed and approved by the City and the improvements are in process.

ii. On industrial, commercial and multi-family developments, lots with multiple buildings, or in subdivisions with multiple single family residential lots, permits for up to fifty percent of the buildings or fifty percent of the single family lots may be issued, provided improvement plans for the subdivision have been reviewed by the City and the improvements are in process. If the permits for more than fifty percent of the buildings or single family residential lots are requested, sufficient security as required by Section 19.08.040 must be provided in a form acceptable to the city manager, or designee, and accepted by the City prior to the issuance of foundation or building permits.

iii. The final signed copies of the plats for recordation have been delivered to the City to hold until the agreed upon recording date, along with all fees, certificates and until all other recording requirements have been met.

iv. Sidewalks, landscape, and curb ramps on subdivisions within City limits may be deferred until building permits are requested for residential lots; except sidewalks, landscape and curb ramps at the rear of double frontage lots must be installed, inspected, approved and accepted by the City prior to building permits being issued.

b. Subdivision improvements required prior to issuance of permits: No building or foundation permit shall be issued for any lot, or portion thereof, within the subdivision until such time that the required subdivision improvements serving that lot have been completely installed, inspected, approved and accepted by the city as required in Section 19.08.050 of this title, except as follows:

i. On lots with only one industrial or commercial building, improvement plans for the subdivision have been reviewed and approved by the city and the improvements are in process.

ii. On industrial, commercial and multi-family developments, lots with multiple buildings, or in subdivisions with multiple single family residential lots, permits for up to fifty percent of the buildings or fifty percent of the single family lots may be issued, provided improvement plans for the subdivision have been reviewed by the city and the improvements are in process. If the permits for more than fifty percent of the buildings or single family residential lots are requested, sufficient security as required by Section 19.08.040 must be provided in a form acceptable to the city manager, or designee, and accepted by the City prior to the issuance of foundation or building permits.

iii. Under no circumstance will construction be allowed beyond the foundation stage until such

time as fully charged fire hydrants and a drivable surface acceptable to the fire marshal have been provided to such site.

3. Occupancy Permits. Whenever a subdivision plat is required by this title, no occupancy permit shall be issued for any lot, or portion thereof, within the subdivision until such time that the required subdivision improvements serving that lot have been completely installed and inspected and approved by the city as required in Section 19.08.050 of this title or security has been provided in accordance with Section 19.08.040. For purposes of this subsection, required subdivision improvements serving a lot shall mean the improvements to the street abutting the lot and extending to the nearest intersecting street outside the subdivision, and any required water, wastewater, drainage, fire protection or other utilities as required by the building official, or designee.

E. Curb and gutter construction may be started prior to approval of all subdivision improvement plans provided the grading and paving plans have been approved and a permit has been issued by the city manager or designee. The risk for starting such construction prior to approval of all subdivision improvement plans shall be borne entirely by the subdivider. (Ord. 16882 § 2(part), 2008)

(Ord. No. 17236, §§ 12, 27, 11-10-2009; Ord. No. 17517, § 1, 3-29-2011; Ord. No. 18056, § 10, 8-6-2013; Ord. No. 18309, § 1, 1-20-2015; Ord. No. 18971, § 13, 9-3-2019)

19.08.030 Completion of necessary public improvement extension.

Extension of Time. Where good cause exists, the city manager, or designee may extend the period of time designated for completion of necessary improvements, specified within agreements required by this chapter. Such extension of time shall be reported to the city plan commission and recorded in the minutes. No such extension shall be granted beyond two years of final plat approval unless security has been provided to the city by the subdivider to cover the extended period of time in accordance with Section 19.08.040. (Ord. 16882 § 2 (part), 2008)

19.08.040 Security for completion of improvements.

A. Security. Whenever the obligation to install public improvements to serve a subdivision or development is deferred until after recordation of the final plat and (1) certificates of occupancy are requested for any buildings within the subdivision; or (2) the release of condition pursuant to Title 18 for more than fifty percent of the building permits is requested; or (3) the three-year prescribed period for completion after final plat approval of public improvements has lapsed, the subdivider shall guarantee proper construction of any remaining public subdivision improvements, in accordance with standards contained or referred to herein this title, by one of the methods described below:

1. Performance bond. A bond executed by a surety company holding a license to do business in the State of Texas, and acceptable to the City of El Paso, on the form provided by the City of El Paso in an amount equal to the cost of public improvements remaining to be installed as required by this title. The performance bond shall be approved as to form by the city attorney.

2. Trust agreement. A trust deposit in a bank, or trust company, for the benefit of the City of El Paso, of a sum of money equal to the estimated cost of all public improvements remaining to be installed as required by this title. Selection of trustee shall be executed on the form provided by the city and approved as to form by the city attorney.

3. Irrevocable letter of credit. A letter, on a form provided by the city, signed by the principal officer of a local bank, federally-insured savings and loan association, or other financial institution acceptable to the City of El Paso, agreeing to pay the City of El Paso on demand a stipulated sum of money to apply to the estimated cost of all public improvements remaining to be installed as required by this title. The guaranteed payment sum shall be the estimated costs approved by the city manager or designee.

B. Amount and Acceptability. The security shall be issued in the amount of one hundred twenty-five percent of the cost estimate approved by the city manager, or designee for all remaining public improvements associated with the subdivision in accordance with this section. The consulting engineer shall determine the percentage of total work called for by the subdivision approval which has already been performed and develop a cost estimate of the remaining public improvements acceptable to the city manager or designee. The security shall be subject to the approval of the city attorney.

C. Security for Construction in Extraterritorial Jurisdiction. Where the land to be platted lies within the extraterritorial jurisdiction of the city, any required security shall be in a form and contain such terms as are consistent with the city or the county, whichever is more stringent.

D. Partial Release.

1. Upon application of the subdivider, the city manager, or designee or his designee shall determine the percentage of total work called for by the subdivision approval which has already been performed. That portion of the total, less any prior amounts released and a retainage not to exceed ten percent of the total shall then be released.

2. The city manager, or designee and other necessary city officials shall execute any documents necessary to cause release of any portion of the security required by this section in accordance with this provision, provided that all such documents shall be subject to approval by the city attorney.

3. No partial release shall be granted where any substantial part of work performed prior to the date of application fails to meet city standards and specifications for any reason other than incompleteness.

E. Remedies. In addition to all other remedies authorized in Chapter 19.42, where security required in this section has been posted, but required public improvements have not been installed in accordance with the terms of this title, the city may:

1. Declare the subdivision project to be in default and require that all the public improvements be installed regardless of the extent of completion of the development at the time the subdivision project is declared to be in default;

2. Obtain funds under the security and complete the improvements itself or through a third party;

3. Assign its right to receive funds under the security to any third party, including a subsequent owner of the development in exchange for the subsequent owner's posting of security to complete the public improvements serving the tract; or

4. If no lots have been sold, the city may initiate proceedings to have the plat vacated. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 17236, § 27, 11-10-2009; Ord. No. 18056, § 11, 8-6-2013)

19.08.050 Inspection and acceptance of public improvements.

A. Entry and Inspections.

1. The city manager, or designee shall inspect the construction of improvements while in progress as well as upon completion. Construction shall be in accordance with the approved subdivision improvement plans. The city manager or designee shall have the right to enter upon the subdivision site for the purpose of conducting inspections. The city manager or designee shall provide for the inspection of required subdivision improvements during construction to insure general conformity with plans and specifications as approved. If the city manager or designee finds, upon inspection, that any of the required subdivision improvements have not been constructed in accordance with the subdivision improvement plans, this title or the SDM, then the subdivider shall be responsible for making the necessary changes to insure compliance. Any significant change in design required during construction shall be made by the subdivider's engineer, and shall be

subject to prior approval by the city manager or designee. If the city manager, or designee finds upon inspection that any of the required public improvements have not been constructed in accordance with the approved subdivision improvement plans, the property owner shall be responsible for completing and/or correcting the public improvements.

2. Upon completion of each approved phase of the subdivision construction, the subdivider shall notify the city manager or designee that the work is ready for a final inspection. The city manager or designee shall, within ten working days of a notification by the subdivider, arrange and conduct a joint inspection with the subdivider and the contractor to determine that each aspect of the subdivision has been installed per city standards, and in conformity with the approved subdivision improvement plans. Deficiencies requiring correction by a subdivider resulting from an inspection of the city manager or designee on any phase of the subdivision construction shall be made in writing, and such deficiencies shall be corrected within thirty days of the written correction notice unless otherwise agreed to by the city manager or designee in writing. A subsequent inspection of the subdivision construction in any phase requiring correction shall be made within five working days from a request of the subdivider, and the reinspection(s) shall be solely based on corrections requested at the initial inspection; provided, however, that corrections requested at any inspection and necessitated to comply with any statutory requirement shall be made by the subdivider. Failure of the city manager or designee to arrange and conduct the inspection(s) as herein provided shall permit the subdivider to request that the city accept the phase of subdivision construction for maintenance. It shall be the duty of the subdivider to document that the requirement has been met. Documentation that this inspection has been successfully performed shall be submitted to the city manager or designee prior to the acceptance of any approved phase of the subdivision improvements and the contractor's release from liability.

3. The subdivider shall pay all necessary inspection fees, and no permits shall be issued until the required fees have been paid.

B. Submission of As-Built Plans or Record Drawings. The city shall not accept dedication of required public improvements until the applicant's engineer has certified to the city manager, or designee, through submission of a detailed "as-built" or record drawing or survey plat of the property and any off-site easements, the location, dimensions, materials, and other information establishing that the public improvements have been built in accordance with the approved subdivision improvement plans. Each as-built or record drawing sheet shall show all changes made in the plans during construction and on each sheet there shall be an "as-built" or "record" stamp bearing the signature of the engineer and date. An electronic copy of such drawings in accordance with the city manager, or designee's submission requirements shall also be provided. The drawings shall contain:

1. A complete set of "as-built" film reproducible improvement plans for the subdivision. The "as-built" plans shall illustrate that all of the subdivision improvements are in accordance with the subdivision improvement plans and with this title, as approved for the subdivision; and that said subdivision improvements are ready for acceptance by the city, and are free and clear of any and all liens and encumbrances;

2. A monument certification letter for city monuments that meet the requirements of the DCC.

C. Acceptance or Rejection of Improvements.

1. The city manager, or designee, shall be responsible for certifying acceptance of completed subdivision improvements intended for dedication to the City of El Paso.

2. Within the Corporate Limits. Upon completion of the construction of the subdivision improvements, the subdivider shall request that the city accept the improvements for maintenance. Acceptance of the public improvements shall not be unreasonably delayed, withheld, or denied by the city. The public improvements may be accom-

plished in phases; provided, that the phasing is shown on the subdivision improvement plans approved by the city manager or designee pursuant to this title, and that all phases of the subdivision improvements are completed within the time period specified. Concurrently with the request for acceptance of the subdivision improvements for maintenance, the subdivider shall submit "as-built" subdivision improvement plans and surveys as required in subsection B. After final inspection, the city manager or designee shall notify the subdivider in writing as to the acceptance or rejection of such construction.

3. He shall reject such construction only if it fails to comply with standards and specifications of the City of El Paso. If he rejects such construction and the developer fails to make the corrections as requested, the city attorney shall, on direction of the city council, proceed to enforce the guarantee provided by security called for in this title.

4. If the city manager, or designee accepts such construction upon certification by the design engineer that the improvements have been constructed according to the authorized subdivision improvement plans and upon review of such inspections by city inspectors, the city shall execute all the necessary documents within thirty days to release the full amount of any security required in Section 19.08.040, including any retainage. The city manager, or designee, shall issue a certificate to the property owner stating that all required public improvements have been satisfactorily completed. Acceptance of the improvements shall mean that the property owner has transferred all rights to all the public improvements to the city for use and maintenance, upon acceptance of the required public improvements.

D. Disclaimer. Approval of a preliminary plat or final plat by the city plan commission shall not constitute acceptance of any of the public improvements required to serve the subdivision or development. No public improvements shall be accepted for dedication by the city except in accordance with this title.

E. Acceptance of Improvements for Land in Extraterritorial Jurisdiction. Where the facilities to be constructed are located within the city's extraterritorial jurisdiction, and are to be dedicated to El Paso County, the city manager, or designee shall coordinate with the county to ensure that the public improvements have been constructed in accordance with approved subdivision improvement plans, and are ready for acceptance by the county. Any public improvements or property to be dedicated to the city rather than the county shall be inspected and must be approved if all requirements have been met and accepted for dedication or future dedication upon annexation.
(Ord. 16882 § 2 (part), 2008)
(Ord. No. 17236, §§ 7, 27, 11-10-2009; Ord. No. 19327, § 12, 4-26-2022)

19.08.060 Maintenance and warranty of improvements.

A. Maintenance During Construction. The property owner shall maintain all required public improvements during construction of the development. Any damage to the public improvements incurred prior to acceptance of the city shall be the responsibility of the subdivider.

B. Bond. The owner shall covenant to warranty the required public improvements for a period of one year for defective material, construction or workmanship following acceptance by the city of all required public improvements and shall provide a maintenance bond in the amount of fifty percent of the costs of the improvements for such period. All improvements located within an easement or right-of-way shall be bonded.

C. Prior to issuance of the certificate of acceptance by the city manager or designee pursuant to this title, a one-year maintenance guarantee in favor of the city or county, shall be provided by the subdivider by means of a subdivision improvement agreement and guarantee acceptable to the city attorney or county attorney, whomever has jurisdiction.

D. In the event of the maintenance or repair of a defect in the roadway improvement for any

accepted street classification during the initial guarantee period, the subdivider shall provide a one-year extended maintenance guarantee in favor of the city or county for the entire station(s) of the defect area, such one-year period to commence upon completion of the subject maintenance or repair. Such extended maintenance guarantee procedure shall be repeated until the defect with the affected station(s) has been remedied. (Ord. 16882 § 2 (part), 2008)

Article 2. Subdivision Standards

Chapter 19.09

GENERAL REQUIREMENTS

Sections:

19.09.010 General policy.

19.09.020 Reserved.

19.09.030 Conformance to plans.

19.09.010 General policy.

A. Adequate Service for Areas Proposed for Development. Land proposed for development in the city and in the city's extraterritorial jurisdiction must be served adequately by essential public facilities and services, including water facilities, wastewater facilities, roadway and pedestrian facilities, drainage facilities and park and open space facilities. Land shall not be approved for platting or development unless and until adequate public facilities necessary to serve the development exist or provision has been made for the facilities, whether the facilities are to be located within the property being developed or off-site.

B. Responsibilities of the Developer. The subdivider shall pay all design, engineering, labor, and construction costs for facilities required by this title, except to the extent that this title specifically provides for full or partial payment by the City of El Paso, the El Paso Public Water Utilities or others. The provisions of this title shall apply to re-subdivisions as well as to subdivisions. Specifically, the developer shall be responsible for the following:

1. Phasing of development or improvements in order to ensure the provision of adequate public facilities;

2. Extensions of public facilities and roadways including any necessary on-site and off-site facilities to connect to existing public facilities;

3. Providing and/or procuring all necessary property interests, including rights-of-way and easements, for the facilities, whether on-site or off-site;

4. Demonstrating to the city that the public facilities are adequate;

5. Making provisions for future expansion of the public facilities as needed to serve future developments, subject to the city's oversize participation policies, if applicable;

6. Providing for all operations and maintenance of the public facilities until the city or other public entity accepts the improvements;

7. Providing all security, if required in Chapter 19.08, for the construction of the public facilities;

8. Obtaining approvals from the applicable utility providers other than the city; and

9. Complying with all requirements of the utility providers, including the city and applicable drainage districts. (Ord. 16882 § 2 (part), 2008) (Ord. No. 17236, § 27, 11-10-2009)

19.09.020 Reserved.

(Ord. 16882 § 2 (part), 2008)

19.09.030 Conformance to plans.

A. Conformance. Proposed capital improvements serving new development shall conform to and be properly related to the public facilities elements of the city's adopted comprehensive plan, other adopted master plans for public facilities and services including parks and open space, bikeway and transit, and applicable capital improvements plans, and shall meet the service levels specified in such plans.

B. Thoroughfare Plan (Map) Amendments. No final plat shall be approved for any subdivision within the city or its extraterritorial jurisdiction until the applicant has made adequate provision for thoroughfares as shown on the thoroughfare plan (Map) as approved by the city. The thoroughfare plan is a guide for the roadway connections and types that will be needed in the future. Subject to city manager, or designee approval, as long as the connection is made, whether or not it is close to the exact alignment shown on the thoroughfare plan, no thoroughfare plan amendment should be necessary. The design and construction of the pro-

posed thoroughfare shall be in conformance with the city's master plans for thoroughfares and with the City of El Paso Street Design Manual (SDM), and shall be subject to approval by the city manager or designee. If a different roadway type is found to be adequate or if the connection is not proposed to be made, then the thoroughfare plan shall be amended, upon provision of a traffic impact analysis of the proposed amendment in accordance with Chapter 19.18.

C. Water and Wastewater Plans. No final plat shall be approved for any subdivision within the city or its extraterritorial jurisdiction until the applicant has made adequate provision for a water system and a sanitary wastewater system of sufficient capacity to adequately provide service to all tracts and lots within the area to be subdivided. The design and construction of the water system and of the sanitary wastewater system to serve the subdivision shall be in conformance with the El Paso Water Utilities master plans and construction standards for water and wastewater facilities and with the rules and regulations of the Public Service Board/El Paso Water Utilities and with the City of El Paso Street Design Manual (SDM), and shall be subject to approval by the utility manager. Subdivisions either in the ETJ or recently annexed and that are not served by the EPWU but by other systems shall either meet the same EPWU requirements or the requirements of the other utility provider but also be subject to approval by the city manager or designee.

(Ord. 16882 § 2 (part), 2008; Ord. No. 19327, § 13, 4-26-2022)

Chapter 19.10

DEDICATION, CONSTRUCTION REQUIREMENTS AND CITY PARTICIPATION

Sections:

19.10.010 Findings on necessity for right-of-way dedication and construction as a condition of development approval.

19.10.020 In general.

19.10.030 Timing of dedication and construction.

19.10.040 Relief from obligations.

19.10.050 Roadway participation policies—Improvement of roads and utilities within and or abutting the subdivision.

19.10.010 Findings on necessity for right-of-way dedication and construction as a condition of development approval.

A. Support for new development.

1. New development must be supported by adequate public facilities and services as provided for in this title.

2. It is necessary and desirable to provide for dedication of rights-of-way and easements for capital improvements to support new development at the earliest stage of the development process.

3. Requirements for dedication and construction of capital improvements to serve a proposed new development shall be attached as conditions of approval of any development application that contains a specific layout of the development.

B. Essential Nexus. There is an essential nexus between the demand on public facilities systems created by a new development and the requirement to dedicate rights-of-way and easements and to construct capital improvements to offset such impacts.

C. Mitigation of development impacts; proportional share. The city desires to assure both that development impacts are mitigated through contributions of rights-of-way, easements and construction of capital improvements, and that a development project contributes not more than its proportional share of such costs in accordance with this title. (Ord. 16882 § 2 (part), 2008)

19.10.020 In general.

A. Dedication and construction of improvements. The property owner shall dedicate all rights-of-way and easements for and shall construct, capital improvements within the rights-of-way or easements for water, wastewater, road or drainage improvements needed to adequately serve a proposed development consistent with the applicable master facilities plans and construction design standards, whether the facilities are located on, adjacent to or outside the boundaries of the property being developed, subject to the rough proportionality requirements of this ordinance. Such dedication shall be made and shown on the plat, provided, however, the planning division may grant an exception and allow for a dedication to be completed by metes and bounds. The following procedures shall be followed:

1. Where a property owner requests that the city plan commission grant an exception and that approval be given for the metes and bounds dedication of a public easement or right-of-way, the property owner shall file an application for a metes and bounds dedication with the city manager or designee. The metes and bounds dedication application shall include:

a. Electronic submission or completed forms, available at the office of the planning division, signed by the property owner;

b. A metes and bounds description prepared by a surveyor of the property to be dedicated as a public easement or right-of-way, including calculations showing the area;

c. A survey map prepared by a surveyor, clearly and legibly drawn at a scale of one hundred feet to an inch on one or more twenty-four-inch by thirty-six-inch sheets having a minimum one-half-inch

border on all sides, except where the city manager or designee approves a modified scale or other acceptable format, showing all of the following:

i. Legal description stating approximate acreage;

ii. Date of preparation, map scale (both graphic and numeric), north direction and basis of north direction;

iii. Length, bearings and curve data for the survey map boundaries;

iv. Dimensions and identifications of parcel boundaries, adjacent or abutting easements, canals, drains and subdivisions; including at least one row of adjacent lots and parcels;

v. Width and location of proposed public easements or rights-of-way;

vi. A location map at a scale of one inch equals six hundred feet, except where the city manager or designee approves a modified scale, which provides identification of the proposed public easement or right-of-way in relation to features such as local streets, arterial streets, schools and other features;

vii. Identification of any release or other limitations of rights of access to and from the proposed public easement or right-of-way;

viii. Survey data, including:

(a) The survey map shall be tied by bearing and distance to either a section corner, survey line, grant line, or other known and accepted survey points. This tie shall be delineated on the plat,

(b) Any section line, survey line, or grant line crossing or adjoining the property shall be clearly designated and located on the survey map,

(c) The survey map shall show bearings and lengths of all lines, the radius, central angle, chord bearing and distance, length of curve and tangent of curve for all curved lines,

(d) All recognized survey monuments and other evidence of the survey map boundary location found, set, reset or replaced, describing their type and location shall be identified,

(e) All adjoining property shall be identified by legal description, i.e., lot, block and subdivision or tract name or by section, township or other proper identification,

(f) The centerlines of streets adjoining the property, indicating all permanent survey monuments found,

(g) All distances shall be to the nearest hundredth of a foot and shall be shown in feet and decimals thereof; all bearings shall be shown to the nearest degree, minute and second,

(h) A print-out of the mathematical closure of the exterior boundary of the property, which indicates the error of closure of the respective parcel,

(i) The survey map shall be tied to a horizontal control monument established by either the National Geodetic Survey (N.G.S.) or the city if the property is within three thousand feet of such horizontal control monument as determined by the city engineer or other designee of the city manager,

(j) A survey map tied to a horizontal control monument shall be tied to the monument by course and distance. The tie to the monument, including the reference angle to a published azimuth marker, shall be shown on the map. All N.G.S. reference information for the horizontal control monument, including the N.G.S. station designation, State Plane Coordinates grid factor, mapping angle, reference datum and the State Plane Coordinate zone shall also be shown on the plat. The tie to the horizontal control monument shall be made by the surveyor responsible for the boundary survey;

ix. Certification by the surveyor that the survey map represents a survey made on the ground under his supervision and is in compliance with the current Texas Board of Professional Land Surveying Professional and Technical Standards;

x. Certification from a title company qualified to do business in the state, showing the name(s) of the owner(s) of the property to be dedicated by metes and bounds;

d. A processing fee in the amount established by city council;

e. A detailed justification for the request for exception of the regulations contained under this title; and

f. Documentation to show proof of ownership.

g. A current tax certificate from the city tax assessor-collector indicating that all ad valorem taxes have been paid on the property included within the survey map.

2. Review for application completeness. The city manager or designee shall, upon receipt of a metes and bounds dedication application, determine whether or not the application meets all of the content requirements for submittal required in this section. An application not meeting all of the submission requirements of this title shall be returned to the property owner within five working days following the date of acceptance for review of application completeness, indicating the information which is lacking on the application. For purposes of this section, the date of acceptance of a metes and bounds dedication application for review of application completeness shall not be counted as the first day of the five working day review period. If an application accepted for review of application completeness is not returned to the property owner within the five working day review period, the metes and bounds dedication application shall be deemed accepted and the time period specified within paragraph 3 below shall commence on the sixth working day following the date the metes and bounds dedication application was accepted for review of application completeness.

3. Application procedure.

a. Distribution and review. Upon receipt of an application for metes and bounds dedication of a public easement or right-of-way, the city manager or designee shall distribute the application to affected departments. Written comments and recommendations on the application for metes and bounds dedication of a public easement or right-of-way shall be submitted to the city manager or designee within one week from the date of distribution. All objections to the application shall be submitted in writing. Comments and recommendations not submitted or received within the specified time period shall result in comments not being considered by the city manager or designee, and may require that the affected department's late comments and recommendations be presented directly to the city plan commission.

b. The recommendation of the city manager or designee, accompanied with an explanation of their recommendation and comments submitted by staff, shall be presented to the city plan commission in a written report.

c. A copy of this report shall be provided to the property owner and surveyor at least three working days prior to the commission hearing. The property owner shall be present at the commission hearing when the application is heard.

4. Appeal of city plan commission recommendation to disapprove granting the exception. In the event that the city plan commission recommends disapproval of granting the exception for a metes and bounds dedication of a public easement or right-of-way, no dedication instrument shall be prepared by the city attorney, nor shall the application be submitted to the city council for approval. The property owner may, in writing, request an appeal to the city council by filing an application and any required documentation to support the appeal with the city manager or designee and paying any required fee. The city manager or designee shall place an item on the agenda of a regularly scheduled city council meeting. The appeal must be made within fifteen days of the recommendation by the city plan commission.

The city manager or designee shall advise the property owner of the date of the city council meeting. The city council may deny the appeal for the metes and bounds dedication of a public easement or right-of-way or may approve the metes and bounds dedication application and direct the preparation of the dedication instrument for recording.

Where the city council approves a metes and bounds dedication application, the property owner shall be required to submit the necessary docu-

ments for recording. Failure of the property owner to submit the necessary documents for recording within six months following the date of the city council approval on appeal shall require the total resubmission of the metes and bounds dedication application which shall be subject to the then existing regulations.

5. Resubmission of a metes and bounds dedication application. No application for a metes and bounds dedication of a public easement or right-of-way shall be resubmitted within a twelve-month period from the date of final action by the city plan commission or the city council, whichever action occurs last.

B. Facilities impact studies. The city manager, or designee, may require that a property owner pay the costs including any consulting fees associated with the preparation of a comprehensive traffic impact analysis, drainage study or other public facilities study in accordance with this title in order to assist the city in determining whether a proposed development will be supported with adequate levels of public facilities and services concurrent with the demand for the facilities created by the development. The city manager or designee may also allow the developer to arrange for such studies in lieu of the city preparing such studies. If the study is to determine rough proportionality in accordance with this title, then the city shall provide such study. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 17251, § 7, 12-15-2009; Ord. No. 17396, § 10, 8-24-2010; Ord. No. 17738, § 1, 3-6-2012; Ord. No. 17811, § 2, 6-5-2012, eff. 6-11-2012; Ord. No. 19243, §§ 14—16, 10-12-2021)

19.10.030 Timing of dedication and construction.

A. Initial provision for dedication or construction. The city shall require that the submitted documents for approval and any related studies demonstrate that a proposed development shall be adequately served by public facilities and services at the time of consideration by the city plan commission of the first development application that portrays a specific plan of development, including but not limited to, a petition for establishing a petition for an annexation agreement or a development agreement; an application for a land study, or an application for a preliminary plat or final plat. As a condition of approval of the development application, the city may require provision for dedication of rights-of-way or easements for, and construction of, capital improvements to serve the proposed development.

B. Deferral of obligation. The obligation to dedicate rights-of-way for or to construct one or more capital improvements to serve a new development may be deferred until approval of a subordinate development permit, or, in the case of a development proposed to be developed in phases, until a subsequent phase of the development, on the sole discretion of the city, upon written request of the property owner, or at the city's own initiative. The city must find that the deferral of the obligation to a later phase has no negative impact on the proposed development and that any additional costs are provided for. As a condition of deferring the obligation, the city may require that the developer enter into a capital improvements agreement pursuant to Chapter 19.08, specifying the time for dedication of rights-of-way for or provide security for construction of capital improvements serving the development. (Ord. 16882 § 2 (part), 2008)

19.10.040 Relief from obligations.

A. In order to achieve proportionality between the demands created on public facilities by a proposed development and the obligation to provide adequate public facilities, the city may participate in the costs of capital improvements in accordance with this article, credit or offset the obligations against payment of any city fees, or relieve the property owner of some or part of the obligations in response to a petition for relief from a dedication or construction requirement pursuant to Article 5 of this title. (Ord. 16882 § 2 (part), 2008)

19.10.050 Roadway participation policies—Improvement of roads and utilities within and or abutting the subdivision.

A. Improvement of the proportional share of a substandard road within or abutting the subdivision. When an area within a proposed plat, whether residential or nonresidential, abuts on one or both sides of an existing substandard road or utility facility, or a planned or future road, drainage or utility facility as shown on the city's thoroughfare plan and/or adopted plans related to water and wastewater, the developer shall be required to improve the development's proportional share of the road (including appurtenant sidewalks, bike lanes, barrier-free ramps, storm drainage facilities, screening and landscaping, medians and landscaping where required, median openings, left turn lanes, and water quality or erosion controls), the traffic mitigation (including signalization, medians, access and deceleration lanes) and utility facilities, to bring the facilities to city standards, or to replace them with standard city road, traffic mitigation or utility facilities as determined by a traffic or other public facilities impact study. The study, if required, shall be at no cost to the city unless it is used to determine rough proportionality in accordance with this title, in which case the study will be provided by the city.

1. The city plan commission may waive such requirements to provide rights-of-way or street improvements to adjacent substandard roads based on any of the following factors:

a. Fifty per cent of the lots within a quarter mile of the proposed development have already been developed and the existing street improvements are in character with the neighborhood; or,

b. The plat is located within the City of El Paso's Extraterritorial Jurisdiction area, is not within the city's annexation path and written documentation from the County of El Paso has been received stating that the substandard road meets all County requirements and the County is willing to accept the dedication of the substandard road;

c. For all plats located in the City of El Paso's extraterritorial jurisdiction area, written concurrence from the County of El Paso is required prior to the waiver of any dedication and/or improvements.

B. Calculation of minimum proportional share.

1. The developer's share of improvements to a substandard road abutting a subdivision is a minimum of twenty and a half feet of pavement in addition to the curbs, gutters, sidewalks and parkways abutting the subdivision, along the entire boundary of the subdivision, unless the traffic impact study determines that the proportional share of the development is more, in which case that shall become the minimum share of improvements.

2. The minimum developer's share of improvements to a roadway when a subdivision is to be located on both sides of a roadway is the full width of a local roadway, which is fifty-two feet of right-of-way and thirty-two feet of pavement, in addition to the curbs, gutters, sidewalks and parkways, unless the traffic impact study determines that the proportional share of the development is more, in which case that shall become the minimum share of improvements. The roadway shall be improved by the developer on each side of the road along the entire length of the subdivision.

3. The city shall participate in the costs of arterial roads within or abutting the subdivision in excess of the developer's proportional share obligations and where such costs are not borne by another public entity, and in cases where the application of the standards in this chapter result in a disproportional burden on the development, as determined in accordance by the city council in accordance with Chapter 19.46. If the city council determines that funds are not adequate, the city council may choose to do one of the following;

a. Defer the construction of the improvement, allowing the developer to provide for their share of the improvement at a later date in accordance with this title;

b. Allow the developer to install just their portion of the improvement, provided it is adequate for minimum traffic circulation and fire protection; or

c. Sign an agreement with the developer, if the developer proposes to construct the entire roadway improvements and be reimbursed the city's proportional share over time with interest at the rate set in the Texas Government Code Section 2251. (Ord. 16882 § 2 (part), 2008)

(Ord. No. 17765, § 1, 4-3-2012; Ord. No. 17905, § 5, 11-6-2012; Ord. No. 18056, § 12, 8-6-2013; Ord. No. 18192, § 1, 6-17-2014)

Chapter 19.11

EXTRATERRITORIAL JURISDICTION (ETJ) STANDARDS

Sections:

19.11.010 General provisions.

19.11.020 Water and wastewater service.

19.11.030 Lot requirements—Extraterritorial jurisdiction.

19.11.040 Other infrastructure requirements in the ETJ.

19.11.050 Deferred construction of improvements in the ETJ.

19.11.010 General provisions.

A. Owners of property within the extraterritorial jurisdiction who propose a subdivision of land shall be subject to the provisions of this chapter. The regulations contained within Chapter 19.01 and including the Street Design Manual (SDM), shall be applicable except as modified by this chapter.

B. Plat applications within the extraterritorial jurisdiction. Where the land to be platted lies within the extraterritorial jurisdiction of the City of El Paso, no minor plat, preliminary plat, final plat or replat application shall be accepted as complete in accordance with Section 19.37.020 for submission by the responsible official unless the application is accompanied by verification that a copy of such plat has been delivered to the County of El Paso. If the city has not received a decision from the County of El Paso on matters pertaining to the final plat application which are to be determined by the County of El Paso, the application for final plat approval shall be accepted for submission by the city, but shall either be approved subject to subsequent county approval or be denied, unless a waiver of right to thirty-day action is approved. No final plat shall be recorded with the county clerk until both the City of El Paso and El Paso County have approved and the appropriate officials have signed such final plat.

C. Ordinance conflicts. Since the area within the ETJ is subject to the subdivision platting rules and regulations of both the City of El Paso and the County of El Paso, and those regulations may be different, conflicts between the regulations will arise. The more stringent of those rules and regulations shall apply.

D. Connections to existing EPWU water or wastewater system outside the city limits. Applications for connection to existing portions of the EPWU water or wastewater system, pursuant to the EPWU rules and regulations, for uses located outside the city limits will be granted only with the approval of the utility manager.

(Ord. 16882 § 2 (part), 2008; Ord. No. 19327, § 14, 4-26-2022)

19.11.020 Water and wastewater service.

Subdivisions within the extraterritorial jurisdiction shall provide water and wastewater service in accordance with the provisions of this chapter, provided that nothing within this chapter is intended to conflict with state law or the rules and regulations of the Texas Commission on Environmental Quality, or to interfere with any permit, license or certificate, to include, but not limited to, a certificate of public convenience and necessity, granted by the state or TCEQ that establishes who is responsible for providing water and wastewater service to a specified area. The city plan commission shall not grant a subdivider final plat approval unless the subdivision application meets all of the following:

A. Water service. All subdivisions shall provide a complete water service and distribution system capable of delivering potable water to every lot in the subdivision in sufficient capacity to provide for the complete water use needs of the subdivision, and complying with the following:

1. Water service shall be provided by the El Paso Water Utilities in accordance with the EPWU rules and regulations.

2. In the event the El Paso Water Utilities does not agree to provide water service within the

time limits stated in this title, the subdivider shall provide water service in accordance with this title.

3. Where drinking water is to be supplied to a subdivision from a public water system, the water quality and system design, construction and operation shall meet the minimum criteria set forth in the Texas Administrative Code (TAC).

4. Retail utility agreements. Subdividers who propose to supply drinking water by connecting to an existing public water system must provide a written agreement with the retail public utility on the Retail Public Utility Agreement Form available at the city. The agreement must provide that the retail public utility has or will have prior to final plat approval the ability to supply the total flow anticipated from the ultimate development and occupancy of the proposed subdivision for a minimum of thirty years. The agreement must reflect that subdivider has paid, or provided financial guarantees for the payment of, the cost of water meters or other necessary connection equipment, membership fees, water rights acquisition costs, or other fees associated with connection to the public water system so that service will be available to each lot.

5. Design and construction. All water facilities within a subdivision within the ETJ of El Paso meeting Section 19.12.010 shall be designed and constructed to city and El Paso Water Utilities (EPWU) standards and to all state laws, policies, standards, rules and regulations for an approved public water system, including those covering the preparation, submittal and approval of plans and specifications for water systems and acceptable operating practices, and in conformance with all laws, policies, standards and rules and regulations for establishing the ISO rating of the city and current fire codes of the city, provided such service is to be provided by EPWU. If water is provided by a water district or other provider holding a permit of certificate of convenience and necessity (CCN), the water facilities shall be designed and constructed per the standards of that entity and the TCEQ. If an area is subsequently deannexed by the non-EPWU provider, then water facilities shall be designed and constructed to EPWU standards.

6. Non-EPWU systems. Within the extraterritorial jurisdiction, if the El Paso Water Utilities determines within sixty days of the filing of a complete application, as defined in EPWU rules and regulations, that public water service cannot be provided within twelve months from the date of its action on the water application, the subdivider shall be allowed to provide water service through a TCEQ approved water system.

7. Nonpublic water systems.

a. An exception may be granted by the city plan commission in unique situations for a subdivision to be supplied by a nonpublic water system.

b. The developer shall provide documentation that a financial mechanism such as a public improvement district to fund and operate such a nonpublic water system is or will be in place prior to development. Such systems must meet all requirements of this chapter and be approved by the city manager or designee.

8. Individual wells within the ETJ.

a. Individual wells within the ETJ shall be subject to approval by the appropriate health official and this approval shall be documented by the appropriate health official's signature on the water system statement on the plat. The developer must submit with the plat application a certificate from a professional engineer registered in Texas or a geoscientist licensed to practice in Texas verifying the adequacy of the proposed source of well supply prior to plat approval.

b. Compliance with other regulations. Installation, operations and maintenance of individual wells shall comply with city and EPWU standards, regulations of the TCEQ, any other applicable state rules and regulations. In the event of conflict among these regulations, whichever is the most stringent shall apply.

9. Testing. Where individual wells or other nonpublic water systems are proposed for the supply of drinking water to residential establishments, a test well or wells located so as to be representative of the quantity and quality of wa-

ter generally available from the supplying aquifer shall be drilled by the subdivider and the produced waters sampled and submitted to a private laboratory for a complete chemical and bacteriological analysis of the parameters on which there are drinking water standards. The subdivider shall have prepared and provide a copy of a groundwater availability study which shall include an analysis of the long-term (thirty years) quantity of the available groundwater supplies relative to the ultimate needs of the subdivision. The water quality of the water produced from the test well must meet the standards of water quality required for community water systems as set forth in 30 TAC.

a. Without any treatment to the water; or

b. With treatment by an identified and commercially available water treatment system.

10. Transportation of potable water. The conveyance of potable water by transport truck or other mobile device to supply the domestic needs of the subdivision is not an acceptable method, except on an emergency basis. Absence of a water system meeting the standards of these rules due to the negligence of the subdivider does not constitute an emergency.

B. Wastewater service. All subdivisions shall provide a complete wastewater collection system capable of properly removing wastewater from every lot in the subdivision in sufficient capacity to provide for the complete removal of all wastewater generated by the subdivision, and complying with the following:

1. Wastewater service shall be provided by the El Paso Water Utilities in accordance with EPWU rules and regulations.

2. The EPWU shall process an application and determine wastewater provision in the same manner as the water service determination in subsection (A)(6) of this section. If wastewater cannot be provided within said twelve months, the subdivider shall provide wastewater service in accordance with one of the following:

a. Public sewerage facilities (other than El Paso Water Utilities).

i. A subdivider who proposes the development of an organized wastewater collection and treatment system shall obtain a permit to dispose of wastes from the Texas Commission on Environmental Quality (TCEQ) and approval of engineering planning materials for such systems in accordance with the thirty Texas Administrative Code (TAC).

ii. A subdivision that proposes to dispose of wastewater by connecting to an existing permitted facility shall provide a copy of the written agreement with the permittee or retail public utility on the Retail Public Utility Agreement Form available at the city. The agreement shall indicate a willingness and capacity to serve the proposed development, the total occupancy of the proposed subdivision. Engineering plans for the proposed wastewater collection lines shall be approved by the TCEQ prior to construction.

b. On-site sewage facilities. Where the El Paso Water Utilities or other public wastewater system is not required or planned to be extended in the ETJ, in accordance with applicable standards of this title, the authorized health authority may grant an exception to provide wastewater service to a subdivision with on-site sewage disposal systems. Plans shall be prepared for installation of on-site sewage disposal systems designed to serve each lot in the subdivision. Where non-EPWU wastewater lines are planned to collect wastes for transport to private, self-contained sewage treatment facilities within the subdivision, both the sewage collection system as well as necessary treatment facilities shall be installed by and at the expense of the subdivider. Plans and installation of such improvements must be approved by the city manager or designee. The developer shall provide documentation that a financial mechanism such as a public improvement district to fund and operate such a wastewater system is or will be in place. Such systems must meet all requirements of this title and be approved by the city manager or designee.

i. A sewage disposal plan shall be designed by a registered professional engineer or registered sanitarian.

ii. On-site sewerage facilities for the on-site disposal of sewage in the amount of five thousand gallons per day or greater shall obtain a wastewater permit from the TCEQ.

iii. On-site sewerage facilities not required to obtain a wastewater permit from the TCEQ shall obtain a "permit to construct" from an authorized agent in accordance with the Texas Health and Safety Code, other applicable state codes and the sewage facility order of El Paso County, Texas.

iv. On-site sewerage facilities proposed near lakes, water retention ponds or rivers shall be licensed and installed in accordance with the requirements established by the TCEQ in the Texas Administrative Code (TAC).

v. On-site sewerage facilities proposed within aquifer recharge zones shall be licensed and installed in accordance with the requirements established by the TCEQ in the Texas Administrative Code (TAC).

vi. Proposals for on-site sewage disposal systems shall be subject to the review, approval and inspection of the TCEQ or its authorized agent to assure that the systems are in compliance with the Texas Health and Safety Code and the Texas Administrative Code (TAC).

vii. Plans for on-site sewage disposal, as well as actual installation of such facilities, shall be subject to approval by appropriate public health authorities in order to meet requirements of this chapter. Sewage disposal facilities requiring soil absorption systems may be prohibited where such systems will not function due to high ground water, flooding, or unsuitable soil characteristics. To this end, the city plan commission shall require that the subdivider note on the face of the plat that soil absorption fields are prohibited in designated areas.

c. Reclaimed water systems for reuse of treated wastewater.

i. Any proposal for sewage collection, treatment and disposal which includes reclaimed water reuse shall meet the minimum criteria of the Texas Administrative Code (TAC).

ii. Any proposal for on-site sewage facilities which includes provisions for reclaimed water reuse shall meet the minimum criteria of the Texas Administrative Code (TAC).

d. The disposal of sludge from water treatment and wastewater treatment facilities shall meet the criteria of the Texas Administrative Code (TAC).

e. The subdivider shall provide the following setbacks for all lots within a subdivision, notwithstanding the separation or setback distances required by rules governing public utilities, on-site sewerage facilities, or potable water supplies: a minimum of ten feet from streets and other public rights-of-way and a minimum of five feet from adjacent property lines.

C. Submission contents.

1. Final Engineering Report. The final plat shall be accompanied by an engineering report regarding the availability and methodology of providing wastewater treatment service prepared, meeting the requirements of the SDM, and bearing the signed and dated seal of a professional engineer registered in the State of Texas.

2. On-site sewerage facilities. Where private on-site sewerage facilities are proposed, the final engineering report shall include planning materials required by the TAC, including the site evaluation described by the TAC, requirements and all other information required by applicable OSSF regulations.

3. Public water systems. Where water supplies are to be provided by an existing public water system, the subdivider shall furnish an executed contractual agreement with the retail public utility on the Retail Public Utility Agreement Form available at the city. It must provide that the retail public utility has or will have prior to development the ability to supply the total flow anticipated from the ultimate development and occupancy of the proposed subdivision for a minimum of thirty years and that the subdivider has provided for the payment of costs or fees for the connection of each individual lot to the public water system, including water meters, water acquisition fees, or other necessary expenses required by the retail public utility. Before final plat approval, plans and specifications for the proposed water facilities shall have been approved by all entities having jurisdic-

tion over the proposed project, which may include the TCEQ and the health in addition to the responsible departments of the city. If groundwater is to be the source of the water supply, the final engineering report shall include a groundwater availability study which shall include comments regarding the long-term (thirty years) quantity and quality of the available groundwater supplies relative to the ultimate needs of the subdivision.

4. Where there is no existing retail public utility to construct and maintain the proposed water facilities, the subdivider shall establish a retail public utility and obtain a certificate of convenience and necessity ("CCN") from the TCEQ and include evidence of the CCN issuance with the plat. Before final plat submission, an acquisition or wholesale water supply agreement that will provide a sufficient supply to serve the needs of the subdivision for a term of not less than thirty years must be provided.

5. Nonpublic water systems. Where individual wells are proposed for the supply of drinking water to residences, the final engineering report shall include the quantitative and qualitative results of sampling the test wells in accordance with subsection (A)(3) of this section. The results of such analyses shall be made available to the prospective property owners. If the water quality of the test well required pursuant to subsection (A)(3) of this section does not meet the water quality standards as set forth in that section without treatment by an identified and commercially available water treatment system, then the final report must state the type of treatment system that will treat the water produced from the well to the specified water quality standards, the location of at least one commercial establishment within the county at which the system is available for purchase, and the cost of such system, the cost of installation of the system, and the estimated monthly maintenance cost of the treatment system. The engineer shall issue a statement confirming the availability of groundwater supplies to serve the fully developed subdivision over the next thirty years. Such statement may be based on information available from the Texas Water Development Board's Office of Planning. The description of the required sanitary control easement shall be included.

6. Organized sewerage facilities. Where wastewater treatment is to be provided by an existing retail public utility, the subdivider shall furnish a contractual agreement with the retail public utility on the Retail Public Utility Agreement Form available at the city. It must provide that the retail public utility has or will have prior to development the ability to treat the total flow anticipated from the ultimate development and that the subdivider has paid the cost of all fees associated with connection to the wastewater collection and treatment system have been paid so that service is immediately available to each lot. Before final plat approval, an appropriate permit to dispose of wastes shall have been obtained from the TCEQ and plans and specifications for the proposed wastewater collection and treatment facilities shall have been approved by all entities having jurisdiction over the proposed project.

7. Where there is no existing retail public utility to construct and maintain the proposed sewerage facilities, the subdivider shall establish a retail public utility, and obtain a CCN from the TCEQ. Before final plat approval, a wastewater treatment permit authorizing the treatment of the wastewater for the ultimate build-out population of the subdivision shall have been obtained from the TCEQ and plans and specifications for the proposed sewerage facilities shall have been approved by all entities having jurisdiction over the proposed project.

D. Prerequisites to approval.

1. Since state law requires action on a plat within thirty days of a determination of completeness, the city shall, in accordance with this title, approve, deny or approve subject to conditions a final plat in the ETJ unless a waiver of right to thirty-day action is provided by the developer. The conditions may include a requirement that county or utility approvals be obtained.

2. The subdivider shall provide evidence that the plans and specifications for construction in-

cluding any change orders filed with the appropriate authorities have been approved in accordance with the criteria established within this title and the approval from the TCEQ.

3. The subdivider shall provide evidence that the subdivision application has received approval from the El Paso authorized local health agent or department with jurisdiction in accordance with the Texas Administrative Code (TAC) regarding on-site sewage facilities, and the sewage facility order of El Paso County, Texas, as applicable.

4. Additional information. The city may, at its option, require additional information necessary to determine the adequacy of proposed water and wastewater improvements as part of the plat approval process. Such information may include, but not be limited to:

a. Layout of proposed street and drainage work;

b. Legal description of the property;

c. Existing area features;

d. Topography;

e. Floodplains;

f. Description of existing easements;

g. Layout of other utilities;

h. Notation of deed restrictions;

i. Public use areas; or

j. Proposed area features.

E. Scope of Standards. All plats for residential developments and manufactured home parks shall comply with the minimum standards of this chapter. Subdivisions are presumed to be residential developments unless the land is restricted to nonresidential uses on the final plat and on all deeds and contracts for deeds, or by restrictive covenants recorded in the office of the county clerk with the final plat. (Ord. 16882 § 2 (part), 2008)

(Ord. No. 17236, § 27, 11-10-2009; Ord. No. 19327, § 15, 4-26-2022)

19.11.030 Lot requirements—Extraterritorial jurisdiction.

A. Residential Subdivision Lot Sizes.

1. In a subdivision in the ETJ where public water and public sewers are provided and on-site ponding is not used, the minimum lot areas shall be six thousand square feet or as approved by the County of El Paso, provided a minimum lot width of fifty feet and a minimum lot depth of ninety feet shall be provided.

2. In a subdivision in the ETJ where public water and public sewers are provided, and on-site ponding is used, the minimum lot areas shall be ten thousand square feet with a minimum lot width of at least one-third the lot depth.

3. Subdivisions in the ETJ served by a public water system, but utilizing individual methods of sewage disposal shall provide for lots of at least one-half acre. In calculating lot or tract sizes, access easements or rights-of-way adjacent to or through such lots shall not be used to satisfy the one-half acre requirement.

4. Subdivisions in the ETJ utilizing individual water supply systems, individual methods of sewage disposal shall provide for lots of at least one acre. In calculating lot or tract sizes, access easements or rights-of-way adjacent to or through such lots shall not be used to satisfy the one-acre requirement.

5. An exception to the minimum lot size requirements in the ETJ of this chapter may be granted by the city plan commission, upon approval in advance by the TCEQ and the appropriate health official of a sewage disposal plan for on-site sewage disposal prepared by an engineer or sanitarian registered in the State of Texas.

6. No more than one single-family detached dwelling shall be located on each subdivision lot in the ETJ. A notation of this restriction shall be placed on the face of the recording plat. This restriction shall be placed in all deeds and contracts for deeds for real estate sold within the ETJ subdivision. Where otherwise authorized, proposals which include multifamily residential structures shall include adequate, detailed planning materials required by the city for determination of proper water and wastewater utility type and design.

B. Manufactured Home Park Space Sizes.

1. The minimum lot area for a manufactured home park where public water and public sewers are provided shall be thirty thousand square feet with a minimum lot width of one hundred feet and a minimum lot depth of three hundred feet. In a manufactured home park where individual manufactured spaces are for lease, the minimum manufactured home space area shall be four thousand five hundred square feet with an average space width of forty-five feet and a minimum space depth of one hundred feet.

2. The minimum lot requirements for manufactured homes on individually owned lots in subdivisions shall meet the requirements for a single-family lot in subsection A of this section.

3. Parks for manufactured homes served by a public water system, but utilizing individual methods of sewage disposal, shall provide a minimum one-half acre for each manufactured home space. In calculating the minimum manufactured home space area, access easements or rights-of-way adjacent to or through such manufactured home space shall not be used to satisfy the one-half acre requirement.

4. Parks serving manufactured homes utilizing individual water supply systems and individual methods of sewage disposal shall provide a minimum one acre for each manufactured home space. In calculating the minimum manufactured home space area, access easements or rights-of-way adjacent to or through such manufactured home space shall not be used to satisfy the one-acre requirement.

5. The space size requirements of this title may be modified by the city plan commission, upon approval in advance by the TCEQ and authorized local health agent or department with jurisdiction of a sewage disposal plan for on-site sewage disposal prepared by an engineer or sanitarian. The design shall show proposed well locations within a one hundred fifty-foot radius (sanitary control easement) around the well in which no subsurface sewage system may be constructed; except that a watertight sewage unit or lined evapotranspiration bed with leak detection capability may be placed closer to the water well than one hundred fifty feet. In no instance shall the area available for the on-site sewage system be less than two times the design area. The on-site sewage system shall be designed in accordance with the requirements of this title. A finding under this subsection shall only be made upon proof that the on-site sewage system can be operated without causing pollution, a nuisance, or a threat or harm to an existing or proposed water supply system. When a property abuts any public street or alley in which there is a public sewer within three hundred feet from the closest point of the property, and when the on-site sewage system causes pollution, a nuisance, or a threat or harm to an existing or proposed water supply system as determined by the TCEQ and/or the authorized local health agent or department with jurisdiction, the property shall be required to connect to the public sewer.

6. No more than one manufactured home shall be located on each manufactured home space in a manufactured home park. A notation of this restriction shall be placed on the face of the final plat of the subdivision.

C. Building Lines. Front building lines shall be shown for all lots on all plats submitted for land within the city's ETJ, and shall be as follows:

1. The minimum building setback from lot boundaries adjacent to street rights-of-way shall be as follows in subsection "a" below, except as specified in subsection "b."

a. Setback from boundary adjacent to freeway (without frontage road in place): forty feet.

Setback from boundary adjacent to freeway (with frontage road in place): thirty feet.

Setback from boundary adjacent to arterial or collector street: thirty feet.

Setback from boundary adjacent to a local street: twenty-five feet.

b. For new lots created by re-subdivision of land originally subdivided before 1985, the minimum building setback from street-side boundaries shall be the same as that indicated on the most previously recorded plat or replat of the particular

lot(s) under consideration. In all cases, however, there shall be required a front yard of not less than twenty feet and an exterior side yard of not less than fifteen feet, where no building setback lines are represented on a previously recorded plat or replat. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 17236, § 27, 11-10-2009)

19.11.040 Other infrastructure requirements in the ETJ.

A. Parks. Parks shall be required in designated areas within the ETJ that the City has identified as future areas for potential voluntary annexations. The areas of potential annexations are identified on an official map kept in the planning division and included as part of Section 19.11 Attachment A, as may be amended by City Council Subdivisions located in those designated areas within the ETJ of El Paso shall meet the park requirements of the city contained within Chapter 19.20. Any land conveyed to the city for future park purposes shall be identified on the plat as a legal lot with lot number. The developer shall provide to the city a warranty deed, approved by the city attorney's office, conveying the property to the city for park purposes. Land acquired by the city for park purposes under the provisions of this chapter will not be maintained or improved by the county. A sign containing city contact information shall be placed upon the site noting that the lot is owned and maintained by the City of El Paso. Upon acceptance by the city, the city shall have the responsibility to maintain the parkland, facilities and any improvements provided by the dedication or subsequently made to the park in accordance with Chapter 19.20.

B. Streetlighting. Subdivisions within the ETJ of El Paso shall make provisions for streetlighting in accordance with the requirements of the county. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 17251, § 8, 12-15-2009; Ord. No. 17396, § 11, 8-24-2010)

19.11.050 Deferred construction of improvements in the ETJ.

In order to not create disincentives to development within the city limits of El Paso and to avoid future expenses for the taxpayers of the city to bring newly annexed, developed areas up to city standards, the city will require, where possible, the actual infrastructure required by this title to be installed or constructed. Where such improvements cannot be constructed at the time of plat approval, the city may require cash escrow to offset the future expense in accordance with Chapter 19.08. If the city manager or designee determines that an improvement may not be constructed within ten years, it may waive the requirement for cash escrow for such improvements. (Ord. 16882 § 2 (part), 2008)

Chapter 19.12

WATER

Sections:

19.12.010 Water extension and installation.

19.12.020 The El Paso Water Utilities System.

19.12.030 Location; performance guarantees.

19.12.040 Individual wells.

19.12.010 Water extension and installation.

A. Water Required for Public Safety. All lots, tracts or parcels on which development is proposed shall be connected to a public water system which has capacity to provide water for domestic use and emergency purposes, including adequate fire protection.

B. Responsibility.

1. Within the corporate limits and the extraterritorial jurisdiction (ETJ) the subdivider shall make application to the El Paso Water Utilities if within their designated service area for water service prior to submitting an application for subdivision approval. The El Paso Water Utilities shall act upon the water application within sixty days of the receipt of the completed application.

2. Within the corporate limits, if the El Paso Water Utilities determines that public water service can be provided to the subdivision within twelve months from the date of its action on the water application, the subdivider shall provide water service through the public water system. If the EPWU determines that service cannot be provided to the subdivision within twelve months, then the development shall be considered to not have adequate facilities under Section 19.09.010 until such time as service can be provided or the developer makes arrangement for such service.

3. The subdivider shall install and pay for all water extensions and associated facilities, including fire hydrants, in accordance with all standards required by this title, the El Paso Water Utilities (EPWU) and all other city ordinances, except to the extent that Section 19.14.010 and Chapter 19.10 provide for refunding the cost of certain water mains larger than eight inches in diameter.

4. All such extensions and facilities shall be installed within a public right-of-way or easement designated for utility access.

5. Upon certification that municipal water extensions and associated facilities have been completed in conformance with applicable standards and specifications, such extensions and facilities shall be dedicated to and accepted by EPWU.

C. Extension and Related Expense. Where the EPWU's water distribution system is not planned to be extended, all necessary water facilities shall be provided by and at the expense of the subdivider. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 17236, § 27, 11-10-2009)

19.12.020 The El Paso Water Utilities System.

A. Installation of Water Facilities. Where water is to be provided through the EPWU system, the developer shall install adequate water facilities, including fire hydrants, in accordance with the current rules and regulations for public water systems of the TCEQ, the rules and regulations of the El Paso Water Utilities/Public Service Board (EPWU/PSB) and the firefighting standards of the Texas Board of Insurance, and the standards and specifications of the city and EPWU.

B. Facilities for Health and Safety Emergencies; Alternative Water Sources. All water facilities connected to the EPWU water system shall be capable of providing water for health and emergency purposes, including fire protection. Water supply facilities shall be in accordance with city and EPWU. The design and construction of water system improvements and alternative water sources shall also comply with the following standards:

1. Design and construction of a water source on the site shall be in accordance with applicable regulations of the TCEQ.

2. Design and construction of water service from the EPWU shall be in accordance with the standards in the city's SDM and of EPWU.

3. Design and construction of a fire protection and suppression system shall be in accordance with the standards of the SDM, the EPWU, the city's adopted fire code, Chapter 9.52 of the code and be approved by the city manager, or designee, utility manager and fire department. (Ord. 16882 § 2 (part), 2008; Ord. No. 19327, § 16, 4-26-2022)

19.12.030 Location; performance guarantees.

A. Subdivision Improvement Plans. The location of all fire hydrants, all water supply improvements and the boundary lines of special districts, private systems and certified water service areas, indicating all improvements proposed to be served shall be shown on the subdivision improvement plans and shall be in accordance with the rules and regulations of the El Paso Water Utilities/public service board (EPWU/PSB) and the City of El Paso, if applicable.

B. Cost. The cost of installing all water supply improvements to be made by the developer, including off-site improvements, shall be included in the performance guarantees furnished by the developer.

C. Location of Lines. Extension of water and wastewater lines shall be made along the entire frontage of the plat adjacent to a street or thoroughfare.

1. If the subdivision is not adjacent to a thoroughfare, the extension of utilities shall be accomplished in such a manner as to allow future connections to said utilities by new subdivisions.

2. If new subdivisions will never be constructed beyond a developing subdivision due to physical constraints, the utility manager and city manager, or designee may waive the requirement for construction of utility lines adjacent to or extending utility lines to beyond the subdivision at the time of final plat approval and prior to construction of the subdivision.

D. Compliance with Other Regulations. Installation, operations and maintenance of utilities not specifically referenced herein shall comply with regulations of the TCEQ, and with any other applicable state rules and regulations, whichever is the most stringent requirement. (Ord. 16882 § 2 (part), 2008)

19.12.040 Individual wells.

A. Within the Corporate City Limits. Individual wells within the corporate city limits of El Paso shall be discouraged. If, in a unique case, an exception is granted to a single property that may not otherwise be served by the authorized local health agent or department with jurisdiction to utilize individual wells, such individual well shall meet all requirements for individual wells contained in Chapter 19.11. (Ord. 16882 § 2 (part), 2008)

Chapter 19.13

WASTEWATER

Sections:

19.13.010 Wastewater extension and installation.

19.13.020 The El Paso Water Utilities Wastewater System.

19.13.030 Location; performance guarantees.

19.13.010 Wastewater extension and installation.

A. Wastewater Collection and Treatment Required for Public Safety. All lots, tracts or parcels on which development is proposed shall be served by an approved means of wastewater collection and treatment. The El Paso Water Utilities (EPWU) utility manager shall be responsible for determining the approved means of wastewater collection and treatment. The utility manager may coordinate with the city to require the phasing of development and/or improvements in order to maintain adequate wastewater capacity. Subdivisions either in the ETJ or that have recently been annexed and are not served by the EPWU shall meet the same requirements but be subject to approval by the city manager or designee.

B. Responsibility.

1. Within the corporate limits and the extraterritorial jurisdiction (ETJ) the subdivider shall make application to the El Paso Water Utilities for wastewater collection service prior to submitting an application for subdivision approval. The El Paso Water Utilities shall act upon the wastewater application within sixty days of the receipt of the completed application.

2. Within the corporate limits, the subdivider shall provide wastewater service through the public wastewater system.

3. Within the corporate limits, if the EPWU determines that public wastewater service can be provided to the subdivision within twelve months from the date of its action on the wastewater application, the subdivider shall provide wastewater service through the public wastewater collection system. If the EPWU determines that service cannot be provided to the subdivision within twelve months, then the development shall be considered to not have adequate facilities under Section 19.09.010 until such time as service can be provided or the developer makes arrangement for such service.

4. The subdivider shall install and pay for all municipal wastewater extensions and associated facilities in accordance with all standards required by this title, the EPWU/PSB rules and regulations and all other city ordinances, except to the extent that Section 19.14.010 and Chapter 19.10 provides for refunding the cost of certain wastewater mains larger than twelve inches in diameter.

5. All such lines and facilities shall be installed within a public right-of-way or easement designated for utility access.

6. Upon certification that municipal wastewater extensions and associated facilities have been completed in accordance with applicable standards and specifications, such extensions and facilities shall be dedicated to the El Paso Water Utilities. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 17236, § 27, 11-10-2009)

19.13.020 The El Paso Water Utilities Wastewater System.

A. Extension. Extension of the EPWU wastewater system shall be required for any subdivision within city limits. Extension of municipal wastewater lines shall be done in accordance with adopted policies and rules and regulations of the EPWU/PSB.

B. Design Requirements. Where wastewater is to be provided through a centralized system, the developer shall install adequate facilities, subject to the standards and specifications of the EPWU and state design criteria for wastewater systems.

C. Existing System. Where insufficient capacity exists downstream of a proposed connection, the replacement and upsizing of the existing main is required of the developer. The installation of a

parallel main is prohibited, unless approved by the utility manager. Installation for lines in excess of twelve inches may be eligible for reimbursement in accordance with Chapter 19.10. (Ord. 16882 § 2 (part), 2008)

19.13.030 Location; performance guarantees.

A. Subdivision Improvement Plans. The location of all wastewater improvements and the boundary lines of special districts, private systems and certified areas, indicating all improvements proposed to be served, shall be shown on the subdivision improvement plans and be in accordance with the rules and regulations of the EPWU.

B. Cost. The cost of installing all wastewater improvements to be made by the developer, including off-site improvements, shall be included in the performance guarantees furnished by the developer. (Ord. 16882 § 2 (part), 2008)

Chapter 19.14

UTILITIES GENERALLY

Sections:

19.14.005 General provisions.

19.14.010 Utility connection.

19.14.020 Utility location policies.

19.14.030 Utility easements on platted lots.

19.14.005 General provisions.

A. General Provisions.

1. Utilities shall include water, wastewater, natural gas, electric, cable television, telephone and other public utilities.

2. All utilities shall be located underground in any new residential subdivision.

3. Within nonresidential subdivisions, utilities shall be located underground unless the adjacent property has overhead utility lines.

4. Underground utilities may be buried in dedicated easements or in rights-of-way.

5. In residential or nonresidential subdivisions and in those that are considered "infill" development or redevelopment, overhead electrical utilities may be utilized if the surrounding existing development has overhead electric utilities.

6. Electrical transmission lines over twenty-four KV shall not be required to be placed underground.

7. Overhead electrical distribution lines shall be permitted in industrial and/or commercial parks.

B. Placement.

1. The placement and separation of the various utilities within an easement or right-of-way shall conform to the Development Standards for Construction contained in the SDM. The placement and separation of water and wastewater utilities shall also conform to the requirements of the Texas Commission on Environmental Quality (TCEQ).

2. If a water or wastewater main is to be placed in a shared easement, the location of such main in relation to the other utilities shall be coordinated with the affected utility agencies.

(Ord. 16882 § 2 (part), 2008; Ord. No. 19327, § 17, 4-26-2022)

19.14.010 Utility connection.

A. Participation and Extension Policies. A property may not be served or connected with water, wastewater, electricity, gas or other utility service unless the owner of the property has been issued or otherwise holds a certificate of compliance applicable to the land to be served or connected as provided in Section 19.37.140. For purposes of this chapter, utility service and connection shall not include the laying of utility facilities, or the installation and use of meters or hook-ups required for construction of any required subdivision improvements or buildings. Provided, however, that a property may be served or connected with water, wastewater, electricity, gas or other utility service regardless of whether an entity is presented with or holds a certificate of compliance when:

1. The property, or any portion thereof, was first served or connected by a public utility that provides water, wastewater, electricity, gas or other utility service before September 1, 1987;

2. The property, or any portion thereof, was first served or connected by either a utility service corporation organized and operating under Article 1434a, Vernon's Texas Civil Statutes or a special district or authority created by or under state law that provides utility service, with water, wastewater, electricity, gas or other utility service before September 1, 1989; or

3. The city manager or designee issues a certificate stating that:

a. The land, before September 1, 1995, was sold or conveyed to the person requesting service by any means of conveyance, including a contract for deed or executory contract,

b. The land is located in a subdivision in which utility service has been previously provided,

c. The land is located within the extraterritorial jurisdiction,

d. Construction of a residence on any portion of the property, evidenced by at least the existence of a completed foundation, was begun on or before May 1, 1997,

e. The person requesting utility service provides either:

i. A copy of the means of conveyance or other documents that show that the land was sold or conveyed to the person requesting utility service before September 1, 1995, and a notarized affidavit by that person that states that construction of a residence on the property; evidenced by at least the existence of a completed foundation, was begun on or before May 1, 1997, or

ii. A notarized affidavit by the person requesting utility service that states that the property was sold or conveyed to that person before September 1, 1995, and that construction of a residence on the property, evidenced by at least the existence of a completed foundation, was begun on or before May 1, 1997, and

f. The utility service provider provides utility service to property described by subsection (A)(3) only if the person requesting service:

i. Is not the land's subdivider or the subdivider's agent, and

ii. Provides to the utility service provider a certificate from the city manager or designee as described by subsection (A)(3);

4. Applicability. This chapter shall apply to land that is first served or connected with water or wastewater service, or both, on or after July 11, 1995 (passage of Ordinance No. 012475).

5. Exception. An exception may be granted in accordance with Chapter 19.48 when the city plan commission determines, following a recommendation by the director of the authorized local health agent or department with jurisdiction, that a threat to public health and safety may result from an existing water supply system or on-site sewage system on property which has been privately developed without a subdivision as required by this title; and where the strict application of these regulations cannot be observed due to the existing conditions of the property. For purposes of this subsection, property which has been privately developed shall include any portion of a tract or parcel of land on which a structure has been permanently located on the ground, or has been attached to something having a permanent location on the ground, and which has been continuously occupied for any use. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 17236, § 27, 11-10-2009)

19.14.020 Utility location policies.

A. Placement. It is in the city's best interest to coordinate and regulate the placement of utilities within public rights-of-way or public or private easements. Such regulations and coordination shall be managed under the general standards of this chapter.

B. Standards.

1. Public street rights-of-way shall be the preferred location for all utility extensions to the extent reasonably possible.

2. In order to accommodate the multiple public and franchise utilities within the public street right-of-way, there shall be a minimum amount of unpaved right-of-way outside of and in addition to the right-of-way covered by street paving, sidewalk and curb-and-gutter in accordance with the SDM street cross sections and requirements. This unpaved area may be between the curb and sidewalk or on the outside of the sidewalk. The minimum roadway cross sections in Chapter 19.15 have been designed with a minimum area behind the curb, and sufficient right-of-way to meet this requirement in accordance with the SDM shall be dedicated to accommodate over-width sidewalks, bikeways, or any surface improvement.

3. Easements on private property may be used in the following instances and under conditions specified therein:

a. For pedestal, transformer and utility hut pads;

b. Where special developments (i.e., cluster subdivisions and planned development districts) occur;

c. Where public or private streets are platted lacking sufficient parkway to install required and franchise utilities and, even then, such easements as needed shall be provided adjacent and parallel to the street;

d. Where on-site ponding is proposed and the parkway is proposed to be removed to accommodate the on-site ponding, then the utilities must be located in an adjacent easement;

e. Where unusual circumstances prevent use of the public right-of-way or private street; and

f. Easements shall be a minimum of ten feet on private property, or as specified by the utility provider utilizing the easement.

4. Prior to the pavement installation, the subdivider shall obtain a written release from each utility provider indicating that required utility installation is complete. Subdividers shall provide such release to the city.

5. A joint trench for electric and communication utilities shall be provided, in accordance with the SDM. Separate trenching for electric and communication utilities will be allowed only:

a. In the mountain development area, in accordance with Chapter 19.24;

b. For individual street crossings;

c. For service drops;

d. Where existing service feeds or sources are coming from demonstrably different directions;

e. In replats where existing utilities are in separate trenches.

6. Conduit, to accommodate electric, telephone and cable television service lines at street crossings extending from closures on one side of the street, shall be provided. Utilities shall meet the locational criteria, if any, contained in the SDM.

(Ord. 16882 § 2 (part), 2008; Ord. No. 19327, § 18, 4-26-2022)

19.14.030 Utility easements on platted lots.

A. Side of Platted Lots. Side lot easements are discouraged and shall be allowed only where severe topographic constraints exist or the easements are necessary to serve the property or adjacent property. If one or more utilities must be located at the side of platted lots, an easement shall be designated as prescribed below:

1. The easement shall be a minimum of ten feet in width or as specified by the utility provider utilizing the easement and shall be located entirely within the boundaries of one lot.

2. The property owner whose property is subject to such easement shall be responsible for its maintenance and shall keep it free and clear of any permanent building or structure with the exception of fencing. No building permits shall be issued to place any building or other improvement on, over, or within such easement, in whole or part. (Ord. 16882 § 2 (part), 2008)

Chapter 19.15

ROADWAYS

Sections:

19.15.010 Adequacy of streets and thoroughfares.

19.15.020 Subdivider responsibility.

19.15.030 Street/thoroughfare escrow policies and procedures.

19.15.040 Public right-of-way, alley or public easement vacation.

19.15.050 General requirements.

19.15.060 Street standards.

19.15.070 Intersections, half-streets.

19.15.080 Street length.

19.15.090 Cul-de-sac streets.

19.15.100 Dead-end streets.

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19.15.140 Street names and addresses.

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19.15.010 Adequacy of streets and thoroughfares.

A. Responsibility for Adequacy of Streets and Thoroughfares. The property owner shall assure that the subdivision is served by adequate streets and thoroughfares, and shall be responsible for the costs of rights-of-way and street improvements, in accordance with the following policies and standards, and subject to the city's cost participation policies on oversized facilities. Additional right-of-way may be required at some street intersections to accommodate utilities, sidewalks, traffic control devices and/or sight distances.

B. General Adequacy Policy. Every subdivision shall be served by improved streets and thoroughfares adequate to accommodate the vehicular, bicycle and pedestrian traffic to be generated by the development. Adequacy as it relates to public improvements including roadways is attained by complying with the requirements and standards of this title, the SDM and all related city ordinances. Proposed streets shall provide a safe, convenient and functional system for traffic circulation; shall be related to the city's thoroughfare plan, road classification system, comprehensive plan and any amendments thereto; and shall be appropriate for the particular traffic characteristics of each development.

C. Road Network. New subdivisions shall be supported by a road network having adequate capacity, ingress/egress, safe and efficient traffic circulation and roadway network connectivity. The adequacy of the road network for developments that meet the requirements of Section 19.18.010(B), traffic impact studies (TIA), shall be demonstrated by preparation and submission, prior to or along with land study or the preliminary plat application, of a traffic impact analysis prepared in accordance with Chapter 19.18 (Traffic Impact Analysis). The study shall address accommodating traffic generated by the development, land to be developed in common ownership and other developed property.

1. In the event the property to be developed is intended as a phase in a larger development project, or constitutes a portion of the land to be ultimately developed, the city manager, or designee may require a demonstration of adequacy pursuant to this article for additional phases or portions of the property as a condition of approval for the proposed preliminary plat.

D. Major and minor arterials, collectors and other thoroughfares appearing on the city's adopted bike plan shall have bicycle facilities installed in accordance with the Street Design Manual. For major and minor arterials, collectors and other thoroughfares not appearing on the city's adopted bike plan, bicycle facilities may be constructed on one side or both sides of the street.

E. Traffic Calming. Traffic calming may be provided by the developer or may be required in

accordance with the adopted Neighborhood Management Policy and in accordance with the SDM by the city manager or designee.
(Ord. 16882 § 2 (part), 2008; Ord. No. 19327, § 19, 4-26-2022)

19.15.020 Subdivider responsibility.

A. Safety, Convenience, Functionality. Proposed roads serving new development shall provide a safe, convenient and functional system for vehicular, bicycle and pedestrian circulation and shall conform to the applicable master thoroughfare plan and any amendments thereto, and shall be appropriate for the particular traffic characteristics of each proposed subdivision or development. New developments shall be supported by a thoroughfare network having adequate capacity, and safe and efficient traffic circulation as determined by staff and/or a traffic impact analysis.

B. Streets, Generally. All streets, including curb and gutter improvements, sidewalks, and required infrastructure shall be provided by and at the expense of the subdivider, subject to the rough proportionality provisions of this title. The subdivider shall dedicate all rights-of-way in accordance with subsection C of this section. The subdivider shall install streets at all locations and in accordance with all standards required by this title.

1. The subdivider shall pay the cost of all such improvements, except as follows:

a. Arterial Streets and Collectors Within Subdivision Boundaries. If the right-of-way for any arterial or collector street lies entirely within the boundaries of any subdivision or portion thereof, the city shall have the option of designing the arterial or collector and/or of being responsible for awarding the contract for construction of required improvements, or allowing the subdivider to arrange for the construction of such arterial provided developer/city participation is in accordance with state bidding statutes. The subdivider shall deposit his share of construction costs with the city prior to award of the contract. The subdivider's share shall include the cost of pavement, curb and gutter, and sidewalks for a street thirty-six feet wide or the roughly proportional share as determined by a TIA.

b. Arterial and Collector Streets Bordering Subdivision Boundaries. If the right-of-way of any arterial or collector street forms part of the subdivision boundary, the subdivider shall dedicate the right-of-way and either improve the street in conformance with this title and Section 19.10.050 or contribute to the city an amount of money equal to that necessary to improve the street in conformance with this title and Section 19.10.050. All money received from subdividers for improving boundary streets shall be deposited in an appropriate fund(s) of the city. When the city council resolves to design and improve a bounding arterial or collector street to standards appropriate to its use, then the assessment fund or similar funds shall be utilized in payment of necessary construction costs.

c. Improving State or Federally Owned Right-of-Way. If the right-of-way for any thoroughfare owned by the state or federal government lies within or adjacent to the subdivision, the subdivider shall not be required to pave any portion of it. The subdivider shall, however, arrange to construct or contribute to the city an amount of money equal to that necessary to furnish curb and gutter and sidewalk improvements to any state- or federally-owned arterial lying within or adjacent to the subdivision, if adequate improvements do not already exist but are determined to be necessary within the next ten years and are not funded by others. The developer may also be required, based on the TIA, to contribute their rough proportional share of additional frontage road lanes, acceleration or deceleration lanes or bus turnouts. Funds shall be deposited and disposed of in a fashion similar to that described in the preceding paragraph (1)(b) of this subsection, concerning improvements to arterial streets bordering subdivision boundaries.

2. Existing Boundary Streets for Small Subdivisions. If the right-of-way of an existing street forms part of the boundary for a subdivision meet-

ing all of the following conditions, the subdivider shall have the option to make the contribution to the city for the cost of required street improvements, as determined by the city manager or designee.

3. Alleys. Where provided, alleys shall be installed and improved in accordance with all standards required by this title and the SDM. Alleys shall be provided by and at the expense of the subdivider. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 17236, § 27, 11-10-2009; Ord. No. 17251, § 9, 12-15-2009; Ord. No. 19327, § 20, 4-26-2022)

19.15.030 Street/thoroughfare escrow policies and procedures.

A. Request for escrow. Whenever this title requires a property owner to construct a street or thoroughfare, or other type of public improvement, the property owner may petition the city manager or designee to construct the improvement at a later time, in exchange for deposit of escrow as established in subsection B below, if unusual circumstances exist, such as a timing issue due to pending improvements by another agency such as TXDOT or the County of El Paso, that would present undue hardships demonstrated in the petition or that would impede public infrastructure coordination or timing. If more than one street or thoroughfare must be constructed in order to meet adequacy requirements for roadways, the city manager, or designee may prioritize roadways for which escrow is to be accepted and require the deposit of all funds attributable to the development in escrow accounts for one or more of the affected roadways. The city manager, or designee, shall review the particular circumstances involved and may require a traffic impact analysis with both roadway and traffic mitigation recommendations. The city manager, or designee, shall determine whether or not provision of escrow deposits will be acceptable in lieu of the property owner's obligation to construct the street or thoroughfare.

B. Escrow deposit with the city. Whenever the city manager or designee agrees to accept escrow deposits in lieu of construction by the property owner/developer, the property owner/developer shall deposit in escrow with the city an amount equal to the property owner's/developer's share of the costs of design, construction, permits, reviews and approvals, inspections, and any additional land acquisition, will be used to ensure that the actual "future dollar" costs will be covered when actual construction occurs in the future. This amount shall be reviewed and approved by the CPC upon recommendation by the city manager or designee, and shall be paid prior to recording of the final plat. The obligations and responsibilities of the property owner/developer shall become those of the property owner's transferees, successors and assigns; and the liability therefore shall be joint and several.

1. Determination of escrow amount. The amount of the escrow shall be determined by using comparable "turnkey" costs for construction of the improvements (including design, permits, reviews and approvals, inspections and any additional land acquisition that may be needed). The determination of the escrow amount shall be made as of the time the escrow is due hereunder, and shall be subject to the review and approval of the city manager or designee.

2. Termination of escrow. Escrows, or portions of escrowed amounts, which have been placed with the city under this chapter and which have been held for a period of five years from the date of such payment or agreement, in the event that the city has not committed or encumbered the funds, approved a contract or authorized the preparation of plans and specifications for construction of such roadway facilities for which the escrow was made, shall, upon written request, be returned to the original property owner/developer. Such return does not remove any obligations of the property owner/developer for construction of the required facilities if a building permit has not been issued on the subject lot(s) or if application for a new building permit(s) is made.

3. Refund. If any street or highway for which escrow is deposited is constructed by a party other

than the city, or is reconstructed by another governmental authority at no cost to the city, the escrowed funds shall be refunded to the property owner/developer that deposited funds into escrow after completion and acceptance of the public improvements. In the event that a portion of the cost is borne by the city and the other portion of the cost by another party or governmental authority, the difference between the property owner's actual proportionate cost and the escrowed funds, shall be refunded after completion and acceptance of the improvements. (Ord. 16882 § 2 (part), 2008) (Ord. No. 17236, § 27, 11-10-2009; Ord. No. 18056, § 13, 8-6-2013)

19.15.040 Public right-of-way, alley, or public easement vacation.

A. Public easements. The vacation of public easements shall be achieved by a Replat, a Vacation Plat, or a separate instrument. If such was originally dedicated to the City by a Plat, then a Replat or a Vacation Plat may be required for vacation. If such was dedicated by a separate instrument, then a Replat or Vacation Plat shall not be required, but such vacation shall be accomplished by separate instrument in accordance with the terms and conditions specified under the dedicatory instrument. Vacation of a temporary drainage easement, drainage area or other temporary dedication of land to the City shall be in accordance with the dedicatory language contained in the dedicatory instrument.

B. Alleys and public rights-of-way. A property owner whose property abuts an alley or right-of-way located within the corporate limits, may apply to the city for a vacation, in whole or in part, of the abutting alley or right-of-way. If no improvements have been made to the alley or right-of-way, such vacation may be obtained either by following the process for vacation of a recorded subdivision or resubdivision as described in Section 19.07 of this title or by complying with the requirements of this Section. If improvements have been made to the alley or right-of-way, such vacation may be obtained only by complying with the requirements of this Section.

C. Application required. An application for vacation of public easements, alleys and rights-of-way, a copy of which is on file with the office of the planning official, accompanied with the following submittal requirements shall be submitted to the city manager or designee:

1. A nonrefundable processing fee as approved by city council.

2. The written concurrence of all persons who own property abutting the public easement or right-of-way proposed to be vacated.

3. Copies of recorded deeds showing current ownership of all properties abutting the public easement or right-of-way proposed to be vacated.

4. Eighteen copies of a survey of the area requested for vacation, showing all abutting property boundaries, improvements (noting whether such improvements are to be removed or are to remain), drainage structures, dimensions and other easements or rights-of-way contained on the property. Such survey shall be prepared by a surveyor (must be sealed) and must contain the following information:

a. Illustrate the existing and proposed drainage patterns, conditions, and what will be modified. Provide drainage easement(s) for any existing active underground drainage pipe and drop inlet(s) located within the property, also for surface drainage flow of storm water crossing the subject property.

b. Provide flood zone designation and illustrate flood zone encroachments, if applicable.

c. A metes and bounds description of the property to be vacated and calculations showing the area in square feet.

d. A location map at a scale of one inch equals six hundred feet which provides identification of the proposed vacation in relation to features such as local streets, arterial streets, schools and other features, on a separate 8½ × 11 sheet.

e. One copy of the subdivision plat or instrument by which the public easement or right-of-way was dedicated, showing the recording information.

D. Review for application completeness. The city manager or designee, shall, upon receipt of an application for vacation of public easements, alleys and rights-of-way, review the application to determine whether or not the application meets all of the requirements for submittal required above. An application not meeting all of the submission requirements shall be returned to the property owner within five working days following the date of acceptance for review of application completeness, indicating the information which is lacking on the application. For purposes of this procedure, the date of acceptance of an application for review of application completeness shall not be counted as the first day of the five working day review period. If an application accepted for review of application completeness is not returned to the property owner within the five working day review period, the application shall be deemed accepted.

E. Procedure and notice.

1. Procedure.

a. Upon acceptance of an application for vacation of public easements, alleys and rights-of-way, the city manager or designee shall distribute the application to affected departments. Written comments and recommendations on the application shall be submitted to the city manager or designee within one week from the date of distribution. All objections to the application shall be submitted in writing. Comments and recommendations not submitted or received within the specified time period shall result in comments not being considered by the city manager or designee, and shall require that the affected member's late comments and recommendations be made directly to the city plan commission.

b. The city manager or designee shall present the application to the city plan commission with a recommendation of approval, approval with modifications or disapproval, subject to any written comments and recommendations.

c. The city manager or designee shall compile a report of the written comments and recommendations of city staff, which shall be submitted to the city plan commission. A copy of this report shall be provided to the property owners making the application at least three working days prior to the commission hearing.

d. Upon a favorable recommendation from the city plan commission on the application to vacate a public easement, the city manager or designee shall forward the information to the city attorney for preparation of the vacation ordinance. The city manager or designee shall forward the ordinance to the city council for approval.

e. Upon a favorable recommendation from the city plan commission on the vacation of alleys and rights-of-way, the city manager or designee shall forward the information to the city attorney for preparation of the vacation ordinance and for securing the necessary appraisal or alternate method to establish market value.

f. Upon completion of establishing the market value of the alley or rights-of-way, the city manager or designee shall forward the ordinance to the city council for approval.

2. Public hearing notice.

a. Public easement vacations. Notice to property owners regarding the city plan commission and the city council hearings shall not be required when the application is for vacation of public easement.

b. Alley and public right-of-way vacations. Notice for city plan commission and city council hearing shall be mailed by the city manager or designee to all property owners:

(a) Abutting an alley or public right-of-way proposed to be vacated;

(b) Within the block contiguous to the alley or public right-of-way proposed to be vacated; and

(c) Within a two hundred foot radius of the alley or public right-of-way proposed to be vacated.

Notice shall be given at least ten days prior to the public hearing. Property ownership shall be determined by reviewing the last approved ad valorem tax roll of the city available. In addition, the city manager or designee shall place a legal notice

in a newspaper of general circulation in the city or as otherwise provided by state law regarding information of the public hearing before the city plan commission on the public right-of-way proposed to be vacated. Notice shall appear in the newspaper ten days prior to the public hearing date.

F. Appeal of city plan commission denial. No vacation ordinance shall be prepared or submitted to the city council where the city plan commission recommends disapproval of an application for vacation of a public easement, alley or right-of-way. The applicant may, in writing, request an appeal to city council by placing an item on the agenda at a regularly scheduled city council meeting. The appeal must be made within fifteen days of the denial by the city plan commission in the office of the city clerk. The city council may deny the appeal or may direct the preparation of the vacation ordinance.

G. Appraisal required for vacation of an alley or public right-of-way.

1. General. Where required by state law, an appraisal shall be made for an application for vacation of an alley or public right-of-way. The applicant shall pay for all appraisal fees incurred by the city. The appraisal shall be requested to determine the market value of the city's interest in the alley or public right-of-way. The cost of the appraisal will be reimbursed to the city by the applicant whether or not the application is finally approved by the city council. The applicant shall submit a check payable to the city for all appraisal fees before the application is forwarded to the city council for finalization.

No appraisal shall be required for an application for vacation of a public easement. In all cases, the market value of the city interest in a public easement to be vacated shall be the equivalent value of twenty-five dollars.

2. Date of valuation. The date for establishing the market value of the alley or public right-of-way proposed to be vacated shall be the date the application is accepted by the city manager or designee.

3. Case of Disputed Value. If the first appraisal obtained by the city is disputed by the applicant, the applicant shall obtain a second independent appraisal at the applicant's expense. The city must agree on the qualification of the second independent appraiser before the appraisal is requested by the applicant. If the city attorney determines that there is a substantial difference between the two appraisals, the city will contact a third independent appraiser to perform a review appraisal, the cost of which shall be paid by the applicant. The city council shall then make a final determination of market value which shall be binding on all parties.

H. Fees to be paid by applicant.

1. Application Fee. Before the city council authorizes the vacation of all or part of a public easement, alley or right-of-way, the applicant shall pay a nonrefundable application fee as established by city council.

2. Vacation Fee for Alley or Public Right-of-Way. In addition to the application fee, the applicant shall pay the following:

a. The cost of the appraisal; and

b. The appraised market value of the city's interest in the alley or public right-of-way.

3. Publication Costs. The city shall bear the costs for publishing notices related to the application to vacate public easements, alleys and rights-of-way, when it is presented before the city council for finalization.

I. Resubmission of a vacation application. No application for vacation of a public easement, alley or right-of-way, shall be resubmitted within a twelve-month period from the date of final action by the city plan commission or the city council, whichever action occurs last.

J. Quit Claim Deed. A Quit Claim deed that eliminates any and all future claim for city responsibility for the vacated right-of-way, alley, or easement may be required by the city council as part of the approval of the document (i.e., Plat or separate instrument) that achieves the vacation. (Ord. 16882 § 2(part), 2008)

(Ord. No. 17251, § 9, 12-15-2009; Ord. No. 17396, § 12, 8-24-2010; Ord. No. 17738, § 2, 3-6-2012)

19.15.050 General requirements.

A. Approach roads and access shall comply with the SDM.

B. Roadway network connectivity shall comply with the SDM.

C. Off-site improvements shall comply with the SDM.

D. Street right-of-way dedication shall comply with the SDM.

E. Street construction shall comply with the SDM.

F. Intersection improvements and traffic control devices shall comply with the SDM.

G. Private streets shall comply the SDM.

H. Access Management. Roadway access management standards and requirements related to TXDOT roadways and city roadways shall be in accordance with the SDM.

I. Exceptions to these requirements shall comply with the SDM. The Street Design Manual allows for flexibility in street design in cases where the proposed subdivision is constrained by topographic features, existing development, or other impassable features, as determined by the city manager or designee. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 17765, § 2, 4-3-2012; Ord. No. 19327, § 21, 4-26-2022)

19.15.060 Street standards.

A. SDM Standards Met. In addition to the requirements of the City of El Paso Street Design Manual (SDM), the requirements of the street standards in this chapter shall be met.

B. Projections and Related Requirements. Where adjoining un-subdivided areas exist, the subdivision street arrangement shall make provision for projection of streets into such areas. Dead-end streets shall otherwise be prohibited, except where projections into un-subdivided land are necessary or where turnarounds are provided in accordance with the SDM. Private streets shall not be allowed to project beyond the subdivision boundary, and therefore shall not be allowed to dead-end at the subdivision boundary.

C. Transitions of right-of-way width shall comply with Street Design Manual.

D. Lots accessing arterial streets shall comply with Street Design Manual.

E. Right-of-Way Widths. Street right-of-way widths shall be as shown in the SDM

F. Construction of Streets. All streets shall be constructed in accordance with paving widths and specifications as set forth in the SDM of the City of El Paso at the time at which any required application is officially submitted and deemed a complete application, in accordance with the vesting provisions of this title.

1. Intersections of major and minor arterials shall be constructed with concrete in accordance with the SDM, unless a specific exception is granted by the CPC and upon the affirmative recommendation of the city engineer or other designee of the city manager.

2. All other streets may be constructed with asphalt in accordance with the SDM.

G. Street Grades and Horizontal Curves. Minimum and maximum street grades and horizontal curves will conform to standards set forth in the SDM and the American Association of State Highway and Transportation Officials (AASHTO).

H. Street Signs. Street signs shall be installed by the developer at all intersections within and abutting the subdivision. These signs shall be of a type approved by the city, and shall be installed according to city standards and in conformance with the Texas Manual on Uniform Traffic Control Devices.

I. Streetlights. Streetlights shall be installed in accordance with the SDM.

J. Screening Along Roadways. Screening requirements for roadways shall be in accordance with the zoning districts and requirements outlined in the zoning ordinance.

K. Pedestrian Connectivity. Pedestrian connectivity and access shall be provided between subdivisions, schools (where access is allowed by the school district), cul-de-sac (i.e., bulb-to-bulb access) and park and open space areas. In cases where a subdivision is constructed in a location

that is adjacent to another subdivision, pedestrian access shall be provided such that adjacent development can connect to such access at a later date, when development occurs. Gated subdivisions, subdivisions with severe topography problems or subdivisions where such connectivity may interfere with arroyo or sensitive environmental protection may be exempt from this requirement upon approval by the city plan commission.

L. Conformance with the Comprehensive Plan. Streets and the layout of streets shall be consistent with the adopted comprehensive plan, and specifically the adopted Major Thoroughfare Plan.

M. Reserve Strips. Reserve strips controlling access to streets shall be prohibited except where their control is required by the city and approved by the city plan commission.

(Ord. 16882 § 2 (part), 2008; Ord. No. 17257, § 1, 12-22-2009; Ord. No. 17571, § 1, 5-24-2011; Ord. No. 17811, § 3, 6-5-2012, eff. 6-11-2012; Ord. No. 19327, § 22, 4-26-2022)

19.15.070 Intersections, half-streets.

Street intersections and half streets shall comply with the SDM.

(Ord. 16882 § 2 (part), 2008; Ord. No. 19327, § 23, 4-26-2022)

19.15.080 Street length.

The length of any block or street segment shall comply with the SDM.

(Ord. 16882 § 2 (part), 2008; Ord. No. 17571, § 2, 5-24-2011; Ord. No. 19327, § 24, 4-26-2022)

19.15.090 Cul-de-sac streets.

Cul-de-sac streets shall comply with the SDM.

(Ord. 16882 § 2 (part), 2008; Ord. No. 17257, § 1, 12-22-2009; Ord. No. 17570, § 3, 5-24-2011; Ord. No. 19327, § 25, 4-26-2022)

19.15.100 Dead-end streets.

Dead-end streets shall comply with the SDM.

(Ord. 16882 § 2 (part), 2008; Ord. No. 19327, § 26, 4-26-2022)

19.15.110 Street width and design.

Pavement widths and designs of right of way shall comply with the City of El Paso Street Design Manual.

(Ord. 16882 § 2 (part), 2008; Ord. No. 17257, § 1, 12-22-2009; Ord. No. 17270, § 1, 1-26-2010; Ord. No. 17570, § 1, 5-24-2011; Ord. No. 19327, § 27, 4-26-2022)

19.15.120 Street offsets.

Street offsets shall comply with the SDM.

(Ord. 16882 § 2 (part), 2008; Ord. No. 19327, § 28, 4-26-2022)

19.15.130 Curbs and gutters.

Curbs and Gutters. Curbs and gutters shall be installed according to the provisions of this chapter and to the SDM. Combination curb and gutter improvements shall be provided to mark the edge of pavement and carry off surface water, as set forth below:

A. Beside Freeways. The subdivider shall be required to install curbs along the outside lanes in rights-of-way designated for freeways, as per the TXDOT approval or construction plans.

B. Beside Arterial and Collector Streets. The subdivider shall install curbs on both sides of all arterial and collector streets within the subdivision, and on one side of all such streets at the subdivision boundary.

C. Beside Local Streets. The subdivider shall install curbs on both sides of all local streets within the subdivision and at subdivision boundaries, except for existing boundary streets, in which case curb and gutter installation shall be required on the subdivision side only.

D. At Street Intersections. The minimum curvature of curbs at street intersections shall be as prescribed in the SDM and shall maintain proper stopping sight distance as determined by the latest edition of AASHTO's "A policy on Geometric Design of Highways and Streets."

(Ord. 16882 § 2 (part), 2008; Ord. No. 19327, § 29, 4-26-2022)

19.15.140 Street names and addresses.

Street names and addresses shall comply with the SDM.

(Ord. 16882 § 2 (part), 2008; Ord. No. 17396, § 13, 8-24-2010; Ord. No. 19327, § 30, 4-26-2022)

19.15.150 Private streets.

A. Permitted Only as Local Street. Private streets shall require approval as an exception at the time of preliminary plat approval by the city plan commission in accordance with this title. No streets or thoroughfares shown on the adopted thoroughfare plan may be a nonpublic street. Construction and development of private streets shall meet the standards for right-of-way width and improvement as set forth in this chapter as applied to public streets.

B. Classification. At the time a private street is proposed, it shall be classified as either a local or sub-collector street, as described herein and made to conform in all respects with right-of-way paving, curb and gutter, construction, and design requirements as applicable to a public street.

C. Subdivision Boundary Streets. New subdivision boundary streets shall not be private.

D. Private Streets, General. In order to be considered for an exception to allow the construction of private streets, the developer shall meet the requirements set out in this section.

1. Construction: All private streets shall be designed, constructed, and maintained to meet city standards. The construction and improvement plans shall be reviewed by the city in the same manner as construction and improvement plans for public infrastructure. The city shall not participate in any portion of the cost of constructing a private street.

2. Inspection During Construction: All private streets shall be subject to inspections by city staff in the same manner, at the same intervals, as public streets, including the payment of applicable inspection fees. A construction schedule shall be submitted with the construction and improvement plans in order to assist in scheduling the inspections. Failure to pass an inspection and meet city construction standards shall require re-inspection, and re-construction, as necessary. No certificates of occupancy shall be released for structures along a private street until all inspections shall have been completed satisfactorily.

3. Traffic Control Devices: All private traffic control devices and regulatory signs shall conform to the "Texas Manual of Uniform Traffic Control Devices", as amended, and to city standards.

4. Restricted Access: The subdivision homeowners association shall clearly mark entrances to all private streets with a sign, in accordance with the DSC, placed in a prominent and visible location, indicating that the streets within the subdivision are private, and not maintained nor regularly patrolled by the city. All restricted access entrances shall be manned twenty-four (24) hours every day, or they shall provide a reliable, alternative means of ensuring access into the subdivision by the City, by emergency service providers, and by other utility or public service providers, such as postal carriers and utility companies, with appropriate identification. The method used to ensure city and emergency access into the subdivision shall be approved by the city's fire department and by any other applicable emergency service providers during the final platting process. Gates on private streets shall provide a traffic queue analysis and provide adequate on-street storage in advance of the gate. If the homeowners association fails to maintain reliable access as required by city codes, the city may enter the private street subdivision and remove any gate or device which is a barrier to access, and bill the expense to the association. If the bill is not paid, the city may file a lien for the expense against any property owned by the association.

5. Waiver of Services: Certain city services may not be provided for private street subdivisions, including street maintenance, routine law enforcement patrols, enforcement of traffic and parking regulations, preparation of accident reports, and payment of costs for street lighting. A note as to waiver of services may be required on the face of the plat.

6. Street Lighting: Street lighting as required by this title shall be entirely at the expense of the developer and subsequent property owners. Decorative poles or alternative spacing may be approved by the city manager or designee, following a recommendation by the DSC, who shall make such recommendation based on the lighting type, the lumens necessary to effectuate safe traffic and pedestrian travel, and a finding that the proposed lighting plan provides as well or better for the health, safety and welfare of the future residents of the private street subdivisions.

7. Maintenance: The developer shall provide for the establishment of a homeowners or property owners association, in covenants, conditions, and restrictions (CCRs), to assume the obligation of perpetual maintenance of private streets and other improvements held privately, including a mandatory assessment for such private streets and improvements to be placed on all property owners within the subdivision, allowance for city staff to inspect the streets to assure they are being maintained to city standards, hold harmless provisions as required in subsection 9, and providing for notice to the city attorney and city manager of any amendments to these relevant sections. The city shall be a necessary party for the amendment of any portions of the CCRs dealing with these requirements. The proposed CCRs shall be submitted for review by the city attorney at the time of filing the preliminary plat. The city attorney shall review the CCRs to ensure that the requirements of this section are met, and shall submit recommended changes to the developer, who shall incorporate such changes. Absence of city attorney approval of the CCRs shall require the denial of the exception for private streets.

8. Petition to Convert to Public Streets: A property owners association may petition the city to accept private streets and any associated property as public streets and right-of-way upon written notice to all association members, and the favorable vote of a majority of the membership, or as required in the CCRs. A dedication instrument shall also be submitted, and shall be reviewed and the final form approved by the city attorney prior to submission of this request to city council.

The city shall not be required to accept any private streets for public dedication and maintenance. The staff shall review the request and make a recommendation to CPC, who shall forward a recommendation to city council. City council shall make their decision based on the public health, safety and welfare considerations of the streets. As a condition of accepting the dedication and maintenance of private streets, the city may impose a requirement for repairs and improvements at private expense prior to acceptance, enter into an agreement for an assessment or pro-rata sharing of costs for repairs or improvements prior to acceptance, or other legal or equitable options to ensure that the streets being accepted are not a liability to the city. The city shall be the sole judge of the nature and extent of repairs or improvements needed. The city may also require, at the sole expense of the association's or property owner's expense, the removal of any guard houses, access control devices, landscaping or other amenities located within the streets or common areas prior to city acceptance.

9. Hold Harmless: The property owners association, as owner of the private streets and appurtenances, shall release, indemnify, defend and hold harmless the city, any other governmental entity, and any public utility entity for damages to the private streets that may be occasioned by the reasonable use of the private streets by same, and for damages and injury (including death) arising from the condition of the private streets, out of any use of access gates or cross arms, or out of any use of the subdivision by the city or governmental or utility entity.

(Ord. 16882 § 2(part), 2008; Ord. No. 17236, § 13, 11-10-2009)

19.15.160 Alleys.

Alleys shall comply with the SDM.

(Ord. 16882 § 2 (part), 2008; Ord. No. 19327, § 31, 4-26-2022)

Chapter 19.16

STREETLIGHTING*

Sections:

19.16.010 Streetlighting.

19.16.020 Custom lighting.

19.16.010 Streetlighting.

Streetlighting shall comply with SDM Chapter 7.

(Ord. 16882 § 2 (part), 2008; Ord. No. 17236, § 6, 11-10-2009; Ord. No. 19327, § 32, 4-26-2022)

19.16.020 Custom lighting.

A. The subdivider may elect to provide custom lighting in lieu of the required standard streetlighting, subject to the approval of such lighting by the city manager or designee. Custom lighting shall be furnished and installed to meet the approved standards of Title 18 of this city code and the SDM.

B. Where custom lighting is approved within the street right-of-way, the city or county shall be liable for the costs of electrical energy of the custom lighting provided that the following conditions are met:

1. A separate rate can be charged to the city by the electric utility for the custom lighting proposed; and

2. The total rate charged to the city is equal to or less than the rate for electrical energy for standard streetlighting.

C. If a subdivider elects to provide and install custom lighting, a public improvement district (or other such private entity) shall be created which will be perpetually liable for all costs associated with the maintenance of the lighting fixtures. Where the city is not liable for the costs of electrical energy from the custom lighting as provided in this subsection, the public improvement district shall also be liable for the electrical energy costs of the custom lighting.

D. An agreement between the city and the public improvement district shall be required which makes adequate provision to indemnify and hold the city harmless from any claims which may arise from the custom lighting, whether within or outside of the public right-of-way. The agreement shall provide that the city may require that any or all of the installed custom lights be removed, at the public improvement district expense, when a finding is made by the city council or county commissioners' court based on a recommendation of the city engineer or other designee of the city manager or county engineer that the custom lighting creates a nuisance or is unsafe. Upon such a finding, standard streetlighting pursuant to this chapter shall be required to be furnished and installed to replace the custom lighting.

E. The city shall reserve the right to review and approve all such provisions of the agreement. The agreement shall accompany the subdivision improvement plan submission. Restrictive covenants which include the provisions for continuous lighting and perpetual maintenance of the custom streetlights shall be recorded by the subdivider concurrently with the subdivision.

F. Where custom lighting is provided, the subdivider or public improvement district shall notify the electric utility before any work is commenced at any streetlight location.

G. Custom streetlighting placed within the public right-of-way shall meet the lumen level required in the DSC and provide roadway coverage meeting or exceeding that provided by standard streetlighting. Lighting outside the right-of-way shall meet the lumen level and coverage requirements of the DSC.

(Ord. 16882 § 2 (part), 2008; Ord. No. 17236, § 6, 11-10-2009; Ord. No. 17811, § 5, 6-5-2012, eff. 6-11-2012; Ord. No. 19327, § 32, 4-26-2022)

***Editor's note—**Ord. No. 19327, § 32, adopted April 26, 2022, amended Ch. 19.16 in its entirety to read as herein set out. Former Ch. 19.16, §§ 19.16.010—19.16.030, pertained to similar subject matter. The historical notation has been retained with the amended provisions for reference purposes.

Chapter 19.17

DRIVEWAYS*

Sections:

19.17.010 Driveways.

19.17.010 Driveways.

Driveways shall comply with the SDM.
(Ord. No. 19327, § 33, 4-26-2022)

***Editor's note**—Ord. No. 19327, § 33, adopted April 26, 2022, amended Ch. 19.17 in its entirety, in effect repealing and replacing said chapter to read as herein set out. Former Ch. 19.17, §§ 19.17.010, 19.17.020, pertained to similar subject matter and derived from Ord. 16882 § 2 (part), adopted in 2008.

Chapter 19.18

TRAFFIC IMPACT ANALYSIS

Sections:

19.18.010 Purpose and applicability.

19.18.020 Standards for and timing of traffic impact analysis.

19.18.030 Criteria for determining traffic impact analysis requirements.

19.18.040 City evaluation and action.

19.18.010 Purpose and applicability.

A. Purposes and findings.

1. New development must be served and supported by an adequate network of streets and thoroughfares.

2. Streets and thoroughfares are an essential component of the city's street network and are necessary to accommodate the continuing growth and development of the city.

3. It is necessary and desirable to obtain rights-of-way for off-site, abutting and internal thoroughfares to support new development at the time of platting, rezoning or development of the land.

4. The purpose of the provisions within this chapter are to ensure that both development impacts on off-site and on-site thoroughfare rights-of-way are mitigated through contributions and/or improvements of thoroughfare rights-of-way and that new development does not contribute more than their proportionate share of costs or construction of thoroughfare rights-of-way and only contribute that which is necessary and attributable to their development.

5. It is the city's intent to assure that dedication of thoroughfare and street rights-of-way and their construction requirements are proportional to the traffic demands created by a new development.

6. It is the intent of the city that a road adequacy determination be made concurrent with consideration and approval of rezoning applications and development applications.

B. Applicability.

1. A traffic impact analysis (TIA), in adherence to standards contained within this title and City of El Paso approved guidelines, shall be required under the following criteria:

a. For all proposed developments within the city limits and within the city's extraterritorial jurisdiction where the development is expected to generate traffic in excess of one thousand average daily trips.

b. If a development project will generate more than one hundred peak hour trips.

2. The number of trips generated by the proposed development shall be based on land uses and intensities according to the latest edition of the Institute of Transportation Engineers (ITE) Trip Generation Manual or locally approved trip generation rates. The daily trip generation rate shall be computed based upon the maximum land use intensity allowed under the proposed new zoning.

3. Exceptions. An applicant may request that the city manager or designee waive the requirement for a TIA. The requirement for a TIA may be waived under the following criteria:

a. The city manager or designee determine that a TIA is not needed due to traffic analysis or traffic studies already completed; or

b. Improvements are already, constructed that will serve and support the new development; or

4. An applicant may request to the city manager or designee that the submittal of the traffic impact analysis be deferred to the subdivision stage of the development; the request shall be approved provided that the following requirements are met:

a. The property proposed for rezoning has not yet been platted; and

b. The proposed development generates less than five hundred peak hour trips.

5. Alternative method of calculating traffic impact.

a. In lieu of a traffic impact analysis, the developer or applicant may request that the city

accept an alternative method of calculating the impact that the new development will have on traffic and thoroughfare rights-of-way.

b. Factors to consider in determining whether to accept an alternate method of calculating the traffic impact are:

(1) The proposed development generates less than five hundred peak hour trips; and

(2) The existing roadway segments within ½-mile radius level of service is an A, B, C, or D, based on the latest version of the Highway Capacity Manual; and

(3) Existing intersections within ½-mile radius level of service is an A, B, C, or D based on the latest version of the Highway Capacity Manual; and

(4) There are no existing safety problems (sight distance, high crash incidence rate, etc.)

(5) Whether the data used in the calculation is no older than one year.

c. Upon review and analysis of the data and information provided by the applicant or developer, the city manager or designee may accept the calculation and base any mitigation required or proportionate share or contribution on the calculations submitted by the developer. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 17236, § 27, 11-10-2009; Ord. No. 17251, § 10, 12-15-2009; Ord. No. 17739, § 1, 3-6-2012; Ord. No. 18649, §§ 1, 2, 3-21-2017)

19.18.020 Standards for and timing of traffic impact analysis.

A. TIA and Update Required. A TIA shall be submitted with a zoning application, a preliminary plat or with the land study. If previously submitted, an updated TIA shall also be submitted with the final plat if substantial changes have been made from the preliminary plat, and shall be generally consistent with the TIA submitted with the preliminary plat. The initial TIA may also be updated whenever the plan for the proposed development is modified to authorize more intensive development.

B. Contents.

1. The TIA on a land study (or preliminary plat or zoning application if no land study is provided) shall identify or determine the following:

a. Trips to be generated by the proposed development trip generation shall be calculated using the latest edition of ITE's Trip Generation Manual or trip generation rates approved by the City of El Paso;

b. Distribution and assignment of such trips to the road network analyzed;

c. The capacity of affected thoroughfares before and after the proposed development. Capacity shall be quantified by level-of-service based on the latest version of the Highway Capacity Manual. The volume to capacity ratio (v/c) shall be included in the level-of-service tables. The capacity analysis shall include the AM and PM peak hours, twenty-four-hour, and special times or days of the week dependant of the land use's peak traffic generating time periods as determined from the latest version of ITE's Trip Generation Manual. Additional factors such as pedestrian trips, bicycles, and mass transit as possibly mitigating vehicle trip counts shall be considered where warranted;

d. Deficient thoroughfares or roadways shall be determined based upon the minimum acceptable level-of-service as put forth in the following table:

Table 19.18-1. Required Minimum Acceptable Level-of-Service (Roadways)

		Level-of-Service Without Proposed Development					
		A	**B**	**C**	**D**	**E**	**F**
Proposed Developed Projected Level-of-Service	**A**	A	-	-	-	-	-
	B	B	B	-	-	-	-
	C	B	C	C	-	-	-
	D	B	C	C	[A]D	-	-
	E	B	C	C	[A]D	[AB]E	-
	F	B	C	C	[A]D	[AB]E	[AB]F

[A] The city may choose to participate in roadway improvements to restore a minimum level-of-service C.

[B] In cases where the level-of-service of the roadway network without development is below a level-of-service D the proposed develop-

ment shall not increase roadway intersection delay. The city manager or designee may deem that the proposed development cannot be supported by the existing roadway network.

e. The development project's proportionate share of the costs of such thoroughfares and modifications including rights-of-way.

2. The TIA on a preliminary plat and a zoning application (or building permit if not submitted previously, or final plat if no preliminary is provided) shall identify or determine the following:

a. Turning movements at intersections, access points and median breaks;

b. Analysis of median breaks, ingress and egress and all intersections, including a queue analysis, for both AM and PM peak hours and special times or days of the week dependant of the land use's peak traffic generating time periods as determined from the latest version of ITE's Trip Generation Manual;

c. The capacity of affected intersections before and after the proposed development shall be reported, based on the latest version of the Highway Capacity Manual, adjusted to reflect existing signal timing plans. The volume to capacity ratio (v/c) shall be included in the intersection level-of-service tables;

d. Deficient intersections and capacity. Deficient intersections shall be determined based upon the minimum acceptable level-of-service as put forth in the following table:

Table 19.18-2. Required Minimum Acceptable Level-of-Service (Intersections)

		Level-of-Service Without Proposed Development					
		A	**B**	**C**	**D**	**E**	**F**
Proposed Developed Projected Level-of-Service	**A**	A	-	-	-	-	-
	B	B	B	-	-	-	-
	C	B	C	C	-	-	-
	D	B	C	C	[A]D	-	-
	E	B	C	C	[A]D	[AB]E	-
	F	B	C	C	[A]D	[AB]E	[AB]F

[A] The city may choose to participate in roadway improvements to restore a minimum level-of-service C.

[B] In cases where the level-of-service of the roadway network without development is below a level-of-service D the proposed development shall not increase roadway intersection delay. The city manager or designee may deem that the proposed development cannot be supported by the existing roadway network.

e. Specific recommendations for thoroughfare, intersection, and roadway improvements and traffic control modifications and other traffic improvements to mitigate the traffic from the proposed development (any proposed signal timing must include the entire coordinated system not just intersections within the TIA study area);

f. The development project's proportionate share of the costs of such improvements and modifications including rights-of-way; and

g. Specific recommendations including but not limited to bus turnouts, auxiliary lanes, traffic calming, location of access points, location of median cuts, parking lot layout and site distance.

3. The method of preparing the TIA shall be as approved by the city traffic engineer.

C. Capital Improvements Plan For Roads. The capacity of a thoroughfare may be considered adequate for purposes of a TIA if a needed improvement is included, funded, and approved in the city's, county's or state's two-year capital improvements plan for roads, or, if the improvement is included, funded, and approved in the city's, county's or state's three- to five-year capital improvements plan for roads, provided that the applicant agrees to phase development to conform to such scheduled improvement. This chapter shall not be construed to prevent the city from requiring dedication of rights-of-way for such roads, or from assigning trips to such roads in a TIA in order to determine a development project's proportionate costs of improvements.

D. Use Intensity Table. Where a proposed plat application does not designate the land use or intensity of use proposed for the development, for purposes of ascertaining the applicability of this chapter and the trips to be generated, the city may utilize typical uses and intensities of use. For land to be developed for nonresidential or multiple-family use in the city's extraterritorial jurisdiction, the city may utilize uses and intensities of use that are typical in the most intensive zoning district that authorizes the type of use proposed in the

development. (Ord. 16882 § 2 (part), 2008) (Ord. No. 17739, § 2, 3-6-2012)

19.18.030 Criteria for determining traffic impact analysis requirements.

Scope. The scope of a traffic impact analysis is an analysis of the area surrounding the development that will be impacted by the development to determine the range of area that must be included in the TIA. The scope of the traffic impact analysis shall be based on the peak hour trips projected to be generated by the proposed development, as set forth in the following table. Additionally, a scoping meeting shall be coordinated with the city manager or designee in order to determine the study intersections within the scope of the TIA.

Table 19.18-3: Criteria for Determining Traffic Impact Analysis

Peak Hour Trips	TIA Analysis Period	TIA Scope
99 or less	1. n/a	Not Required
100—500	1. Existing 2. Opening year	The frontage of the property, all access points (including common access), and all intersections within a ½ mile radius of the proposed development.
	3. Full build-out year	
501—1,000	1. Existing	The frontage of the property, all access points (including common access), and all intersections within a 1 mile radius of the proposed development.
	2. Opening year	
	3. Full build-out year	
	4. 5 years after opening year	
1,000 or more	1. Existing	The frontage of the property, all access points (including common access), and all intersections within a 1½ mile radius of the proposed development.
	2. Opening year	
	3. Full build-out year	
	4. 5 years after opening year	
	5. 10 years after opening year	
		NOTE: All measurements shall be made from property boundaries.

(Ord. 16882 § 2 (part), 2008; Ord. No. 17739, § 1, 3-6-2012)

19.18.040 City evaluation and action.

A. Criteria.

1. The city manager or designee shall evaluate the adequacy of the TIA prepared by the applicant. Based upon such evaluation, the city manager, or designee shall make recommendations concerning:

a. Whether the application may be approved in the absence of dedication of rights-of-way or construction of improvements to each affected thoroughfare; and

b. The extent of the applicant's obligations to make such dedications or improvements.

2. The city manager, or designee may recommend, and the decision-maker on the application may attach, conditions to the approval of the development application, based on one or more of the following performances by the applicant:

a. Delay or phasing of development until thoroughfares with adequate capacity or intersection improvements are constructed;

b. A reduction in the density or intensity of the proposed development sufficient to assure that the road network has adequate capacity to accommodate the additional traffic to be generated by the development;

c. The dedication or construction of thoroughfares or traffic control improvements needed to mitigate the traffic impacts generated by the proposed development; or

d. Any combination of techniques that assures that the traffic impacts of the development will be mitigated.

B. Deferral of obligation. Upon request of the applicant or property owner, the obligation to dedicate or improve thoroughfare rights-of-way or to make intersection improvements imposed on a development application may be deferred until the city's action on a subordinate (i.e., subsequent) development application. As a condition of deferring the obligation to dedicate rights-of-way for or to improve thoroughfares, the deferral shall be at the sole discretion of the city. The city shall require the developer to execute a subdivision improvement agreement (see Section 19.08.020) acceptable to the city attorney specifying the amount and timing of the rights-of-way dedication or improvements to thoroughfares. (Ord. 16882 § 2 (part), 2008)

(Ord. No. 17739, § 1, 3-6-2012)

Chapter 19.19

STORMWATER MANAGEMENT REQUIREMENTS

Sections:

19.19.010 General provisions.

19.19.020 Stormwater requirements for compliance with subdivision approval.

19.19.030 Stormwater management plan requirements.

19.19.040 Stormwater management inspection and maintenance agreements for private facilities.

19.19.050 Construction inspections of stormwater management system.

19.19.010 General provisions.

A. Purpose and Intent. The purpose of this stormwater management section is to protect, maintain and enhance the public health, safety, environment and general welfare of the citizens of El Paso, Texas and the ETJ, by establishing minimum requirements and procedures to control the adverse effects of increased stormwater runoff and non-point source pollution associated with new development and redevelopment. It has been determined that proper management of stormwater runoff will minimize damage to public and private property and infrastructure, safeguard the public health, safety, environment and general welfare of the public, and protect water resources. The ordinance codified in this title seeks to meet that purpose through the following objectives:

1. Establish decision-making processes surrounding private and public land development activities that protect the integrity of the watershed and preserve the health of water resources;

2. Require that new development and redevelopment maintain the pre-development hydrologic response in their post-development state as nearly as practicable in order to reduce flooding, non-point source pollution and maintain the integrity of natural and man-made channels;

3. Establish minimum post-development stormwater management standards and design criteria to be adopted via a Drainage Design Manual (DDM) as part of the Street Design Manual (SDM);

4. Establish design and application criteria for the construction and use of structural stormwater control facilities that can be used to meet the minimum stormwater management standards thru the DDM;

5. Encourage the use of nonstructural stormwater management such as the preservation of greenspace and other conservation areas, to the maximum extent practicable. Coordinate site design plans, which include greenspace, with the city's master open space plan;

6. Establish provisions for the long-term responsibility for and maintenance of structural stormwater control facilities and nonstructural stormwater management practices to ensure that they continue to function as designed, are maintained, and pose no threat to public safety;

7. Establish administrative procedures for the submission, review, and approval of stormwater management plans, and for the inspection of approved active projects, and their continued maintenance.

B. Applicability. This chapter shall be applicable to subdivision development. The DDM standards shall apply to all development.

C. Exemptions. The following activities are exempt from this chapter:

1. Individual single-family or duplex residential lots that are not part of a subdivision or phased development project;

2. Additions or modifications to existing single-family or duplex residential structures;

3. Agricultural activities within areas zoned for these activities and/or where agricultural activities are legally allowed;

4. Repairs to any stormwater management facility deemed necessary by the city manager (or designee); and

5. Subdivisions whose sole means of stormwater management is by individual lot, on-

site retention ponds, shall be exempt from the requirement for an inspection and maintenance agreement.

D. Designation and Role of Floodplain Administrator. The city manager or designee who is a professional engineer licensed in the State of Texas, is authorized and appointed to administer and implement the provisions of this chapter and related chapters of this title, as may be applicable.

E. Drainage Design Manual. The city will utilize, apply, and enforce design standards, methods, criteria, and administrative policies and procedures provided in the latest technical edition of the DDM incorporated by reference in its entirety. The DDM may be updated and periodically expanded as required.

F. Preservation of Natural Arroyos. If being used as part of stormwater management for the development, Arroyos shall be preserved in their natural state, except that an exception of such requirement may be granted by the city plan commission provided such exception both meets the requirements of Chapter 19.48 and is necessary to protect the public health, safety or welfare. If an exception is authorized to allow improvements, the design for such improvements shall be incorporated into the subdivision improvement plans and approved by the floodplain administrator. As part of initial review of a subdivision application prior to acceptance as complete, the floodplain administrator shall determine the area within which improvements will require an exception. The floodplain administrator's determination shall be forwarded to the applicant and city plan commission, which shall decide on any exception requested by the applicant.

(Ord. 16912 §§ 1, 2, 2008; Ord. 16882 § 2 (part), 2008; Ord. No. 19327, § 34, 4-26-2022)

19.19.020 Stormwater requirements for compliance with subdivision approval.

Within the current subdivision review and approval process, no owner or developer shall perform any land development activities without first meeting the requirements of this title prior to commencing the proposed activity. Unless specifically exempted by this title, any owner or developer proposing a land development activity shall submit to the city, with their subdivision the following items for consideration:

A. Stormwater management plan in accordance with Section 19.19.030;

B. Inspection and maintenance agreement for private facilities in accordance with Section 19.19.040, if applicable;

C. The city shall advise the developer or his representative whether the stormwater management plan and inspection and maintenance agreement are compliant;

D. If the stormwater management plan or inspection and maintenance agreement are deemed non-compliant, the city shall notify the developer or his representative of such fact in writing. The applicant may then revise any item not meeting the requirements hereof and resubmit the same;

E. Upon a finding by the city that the stormwater management plan and inspection and maintenance agreement, if applicable, meet the requirements of this title, the city shall approve the stormwater management component of the subdivision submittal provided all other legal requirements for the such approval have been met. (Ord. 16882 § 2 (part), 2008)

19.19.030 Stormwater management plan requirements.

A. The stormwater management plan shall detail how stormwater runoff will be controlled or managed and how the proposed project will meet the requirements of this chapter, including the performance criteria set forth in the DDM.

B. This plan shall be in accordance with the criteria established in this chapter and must be submitted signed and sealed by a professional engineer (PE) licensed in the State of Texas, who must verify that the design of all stormwater management facilities and practices meet the submittal requirements outlined in the submittal checklist(s) found in the DDM.

C. The stormwater management plan must ensure that the requirements in this title are being met. The plan shall include all of the information required in the stormwater management site plan checklist found in the DDM. (Ord. 16882 § 2 (part), 2008)

19.19.040 Stormwater management inspection and maintenance agreements for private facilities.

A. Prior to the approval of any land development activity requiring a stormwater management facility or practice hereunder and for which the city shall require ongoing maintenance, the applicant or owner of the site must, unless an on-site stormwater management facility is dedicated to and accepted by the city, execute an inspection and maintenance agreement, if applicable, that shall be binding on all subsequent owners of the site.

B. The inspection and maintenance agreement, if applicable, must be approved by the city prior to plan approval, and recorded in the deed records upon final plat approval.

C. The inspection and maintenance agreement shall identify by name or official title the person(s) responsible for carrying out the inspection and maintenance activities. Responsibility for the operation and maintenance of the stormwater management facility, unless assumed by a governmental agency, shall remain with the property owner and shall pass to any successor owner. If portions of the land are sold or otherwise transferred, legally binding arrangements shall be made to pass the inspection and maintenance responsibility to the appropriate successors in title. These arrangements shall designate for each portion of the site, the person to be permanently responsible for its inspection and maintenance.

D. As part of the inspection and maintenance agreement, a schedule shall be developed for when and how often routine inspection and maintenance will occur to ensure proper function of the stormwater management facility. The agreement shall also include plans for annual inspections to ensure proper performance of the facility between scheduled maintenance and shall also include remedies for the default thereof.

E. In addition to enforcing the terms of the inspection and maintenance agreement, the city may also enforce all of the following provisions for ongoing inspection and maintenance.

1. Maintenance and Inspection of Private Stormwater Facilities.

a. Stormwater management facilities included in a stormwater management plan which is private and therefore subject to an inspection and maintenance agreement must undergo ongoing inspections to document maintenance and repair needs and ensure compliance with the requirements of the agreement, the plan and this title.

b. A stormwater management facility or practice shall be inspected on a periodic basis by the responsible person in accordance with the approved inspection and maintenance agreement. In the event that the stormwater management facility has not been maintained and/or becomes a danger to public safety or public health, the city shall notify the person responsible for carrying out the maintenance plan by certified mail to the person specified in the inspection and maintenance agreement. The notice shall specify the measures needed to comply with the agreement and the plan and shall specify the time within which such measures shall be completed. If the responsible person fails or refuses to meet the requirements of the inspection and maintenance agreement, the city may correct one violation as provided in subsection (4) hereof.

2. Right-of-Entry for Inspection of Private Facilities. The terms of the inspection and maintenance agreement shall provide for the city to enter the property at reasonable times and in a reasonable manner for the purpose of inspection. This includes the right to enter a property when it has a reasonable basis to believe that a violation of this title is occurring or has occurred and to enter when necessary for abatement of a public nuisance or correction of a violation of this title.

3. Records of Maintenance Activities at Private Facilities. Parties responsible for the operation and maintenance of a stormwater management facility shall provide records of all maintenance and repairs to the city as required by the agreement.

4. Failure to Maintain Private Facilities. If a responsible person fails or refuses to meet the requirements of the inspection and maintenance agreement, the city, after thirty days written notice (except, that in the event the violation constitutes an immediate danger to public health or public safety, twenty-four hours notice shall be sufficient), may correct a violation of the design standards or maintenance requirements by performing the necessary work to place the facility or practice in proper working condition. The city may assess the owner(s) of the facility for the cost of repair work which shall be a lien on the property, and may be placed on the ad valorem tax bill for such property and collected in the ordinary manner for such taxes. (Ord. 16882 § 2 (part), 2008)

(Ord. No. 17236, § 27, 11-10-2009)

19.19.050 Construction inspections of stormwater management system.

A. Inspections to Ensure Plan Compliance During Construction. Periodic inspections of the stormwater management system construction shall be conducted by the city.

B. Final Inspection and Record Drawings and Documents. Upon completion of a project, and before a certificate of occupancy shall be granted, the applicant is responsible for certifying that the completed project is in accordance with the approved stormwater management plan. All applicants are required to submit as constructed record drawings and documents for any stormwater management facilities after final construction is completed. The record drawings must include the final design specifications for all stormwater management facilities and must be certified by a professional engineer licensed in the State of Texas. For those facilities that included mechanical systems, operations and maintenance manuals shall also be included. A final inspection to be conducted concurrent with other inspections by the city is required before the release of any performance bonds can occur. (Ord. 16882 § 2 (part), 2008)

Chapter 19.20

PARKS AND OPEN SPACE

Sections:

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19.20.010 Policy plan and purpose.

A. Purpose. This chapter is adopted to provide recreational areas as a function of subdivision development in the City of El Paso. This article is enacted in accordance with the home rule powers of the City of El Paso granted under the Texas Constitution, and the statutes of the State of Texas, including, but not by way of limitation, V.T.C.A. Local Government Code, Chapter 212. It is declared by the city council that recreation areas in the form of neighborhood parks, community parks that serve several neighborhoods, linear parks, trails, and open space areas are necessary and in the public welfare, and that the only adequate procedure to provide for same is by integrating such a requirement into the procedure for planning and developing property or subdivisions in the city, whether such development consists of new construction on vacant land or the addition of new construction or redevelopment on existing developed lands.

B. Neighborhood parks, community parks, linear parks, trails and open space areas referred to in this chapter are those parks providing for a variety of outdoor recreational opportunities and within convenient distances from the majority of the residences to be served thereby. The primary cost of those parks should be borne by the ultimate property owners who, by reason of their proximity to such parks, shall be the primary beneficiaries of such facilities.

C. The requirements for parkland are based in part on the standards, needs and objectives set forth in the El Paso Parks and Recreation Master Plan, routinely amended and adopted by the city council, a copy of which shall be retained in the office of the director of parks and recreation and which shall be incorporated by reference herein for all purposes. Therefore, the requirements in this code and any requirements in the SDM are adopted to effect the purposes stated above and shall apply to any development within the City of El Paso, except as noted therein

(Ord. 16882 § 2 (part), 2008; Ord. No. 19327, § 35, 4-26-2022)

19.20.020 Dedication required.

A. Dedication Required. All subdivisions located within the corporate limits of the City of El Paso and within those areas designated in the city's extra territorial jurisdiction (ETJ), as identified on an official map kept in the office of the planning official.

1. The land conveyed and deeded to the city shall not be subject to reservations of record, encumbrances or easements which will interfere with the use of the land for park purposes.

2. Where a subsurface interest is severed from the surface estate, retention of the subsurface interest may not be considered an encumbrance for the purposes of this chapter.

B. In Residential Subdivisions. A residential subdivision shall provide for the parkland needs of the community pursuant to Section 19.20.030.

1. For purposes of this chapter, a residential subdivision shall include any subdivision application submitted on property where the zoning allows for single-family, two-family or multifamily development (apartments).

2. This provision may be waived by the city manager or designee where the city is provided a copy of deed restrictions or other legal instrument verifying that the property within the subdivision application or portion thereof, is restricted to nonresidential uses as defined in this chapter. The evidence shall be provided to the city manager or designee with the filing of the preliminary plat, and shall be reviewed by the city attorney prior to the city plan commission action on the preliminary plat. Failure of the subdivider to provide this information with the filing of the preliminary plat shall result in the subdivision application being considered as a residential subdivision.

C. In nonresidential subdivisions. After parkland fees have been calculated, a subdivision, not otherwise classified as a residential subdivision, that changes the use to include dwelling units or increases the density of dwelling units within the subdivision, shall trigger a recalculation of parkland fees or parkland dedication under Chapter 19.20. If additional fees are due or if the recalculation requires parkland to be dedicated, then such fees shall be paid, or dedication provided, prior to the issuance of any building permit.

D. The requirement to provide parkland to the city pursuant to this title shall not be satisfied using land required to be conveyed by the subdivider to the city as part of a separate legal instrument, condition, covenant, contract, agreement, sale or ordinance, except as specifically provided in Section 19.20.130. (Ord. 16882 § 2 (part), 2008) (Ord. No. 17236, § 27, 11-10-2009; Ord. No. 17251, § 11, 12-15-2009; Ord. No. 17396, § 14, 8-24-2010; Ord. No. 17561, § 9, 5-17-2011)

19.20.030 Parkland calculation.

A. Rate.

1. Where a residential subdivision application is filed, the amount of parkland required to be deeded to the city shall be as follows:

a. Single-Family and Two-Family Units. One acre of parkland for every one hundred dwelling units calculated as follows:

$$"x" = "y"/100$$

Where:

"x" is the amount of acres of parkland required to be deeded, and

"y" is the number of dwelling units in the subdivision.

b. Multifamily. One acre of parkland for every two hundred dwelling units calculated as follows:

$$"x" = \frac{"y" \times "z"}{200}$$

Where:

"x" is the amount of acres of parkland required to be dedicated;

"y" is the gross acres of the proposed multifamily subdivision; and

"z" is the density of the proposed multifamily subdivision.

c. Density Calculated. In calculating the parkland requirement for residential subdivision applications where more than one unit per lot may be allowed, density shall be determined by using the gross density permitted by the zoning classification on the property (Title 20).

d. The city manager or designee may waive the gross density used in the parkland calculation rate for subsection (A)(1)c. above when the subdivider verifies by means of deed restrictions or other legal instrument that the density permitted within the subdivision is less than the gross density required by subsection (A)(1)a. or (A)(1)b. of this section. The evidence shall be provided to the city manager or designee with the filing of the final plat, and shall be reviewed by the city attorney prior to city plan commission action on the final

plat. Failure of the subdivider to provide this information with the filing of the final plat shall result in the gross density rates of this chapter being applied to the parkland calculation.

e. Mixed-Use Developments. Subdivisions that provide a mixture of residential and nonresidential components shall meet the requirements of this chapter in the following fashion.

i. Horizontal Mixed-Use Developments. For mixed-use developments where residential and nonresidential components occur in separate buildings within the same development, the residential components will meet the requirements established in Section 19.20.030 above. Nonresidential components will meet the requirements of Section 19.20.110, fees for nonresidential subdivisions.

ii. Vertical Mixed-Use Developments. For mixed-use developments, where residential developments occur above or beside nonresidential development within the same building, the following requirements shall apply.

(A) If the nonresidential component equals or exceeds twenty percent of the gross square footage of the development, parkland fees for the entire development shall be based on the nonresidential fee requirements of Section 19.20.110.

(B) If the nonresidential component is less than twenty percent of the entire square footage of the development, parkland fees for the entire development shall be based on the number of residential units as per the requirements of subsection (A)(1)(b) above.

B. Types of Parkland That May Be Dedicated. The following park configurations of land may be proposed by the subdivider to meet the dedication requirements of this chapter. The lands to be dedicated and the type of dedication to be provided shall be based on the affirmative recommendation of the director of parks and recreation and the approval of the city plan commission.

If the parks director does not provide an affirmative recommendation, the developer may appeal the parks director's decision. The parks director shall provide to the developer, in writing, the reasons for the denial. The appeal will require the developer to file with the planning director an appeal within fifteen business days from receiving the parks director's decision. The appeal shall be accompanied by the following:

(a) A thirty-day waiver of the thirty-day statutory requirement for approval of the subdivision plat.

(b) The reasons for the appeal. Upon receipt of the appeal, the planning director shall place the appeal on the next available city plan commission meeting. The city plan commission may overturn the parks director's decision by a super majority, which shall be three-fourths of the city plan commission present and voting. In determining whether to overturn the parks director's decision, the city plan commission shall consider any evidence presented by the developer and parks director. In no instance can the city plan commission modify or vary any city code requirements.

An alternative type of dedication may be recommended by the director of parks and recreation, based on the specific nature of the subject property. Any dedication that is proposed shall meet the requirements of Section 19.20.050, Standards, except as noted in this chapter.

1. Neighborhood Parks. Lands for parks that serve a neighborhood shall be of the quantity determined by the density of the residential subdivision submitted pursuant to Section 19.20.030. The developer may satisfy Section 19.20.030 by providing multiple park sites that comply with Section 19.20.050, for a residential subdivision application.

2. Dual Park-Pond. Parks and drainage retention or detention ponds may be placed side by side or combined to provide for larger and more efficient park and open space lands for neighborhoods.

Conceptual cross-sections for park-pond areas are included in the subdivision standards. These conceptual drawings are intended to serve as a guideline to the designer, and modifications that meet or exceed the intent of this chapter are encouraged. All park-pond designs shall be ap-

proved by the director of parks and recreation and the city engineer or city floodplain administrator.

a. Park-ponds requirements. For purposes of this subsection, the ponding area proposed for use as a park-pond shall require an affirmative approval for park usage by the director of the parks and recreation department, subject to the provisions below being met. Where acceptable, the pond portion of the park may count towards the required parkland dedication amount at ratio of one acre of park-pond for every one acre of required parkland dedication, subject to the following requirements being met.

i. To be considered as a park-pond, the proposed facility must be located no further than one-half mile from all residences that it is intended to serve. The street frontage for the park-pond shall be continuous along one complete side of the park or thirty-five percent of the park perimeter whichever is greater.

ii. Flat perimeter areas on the rim of the ponding basin shall be provided. These shall be a minimum of ten feet in width from the edge of the pond slope to the nearest property line to allow for a trail, landscaping and pond maintenance requirements. If abutting a seven-foot sidewalk or trail the flat perimeter area shall be a minimum of five feet. Wider and variable width areas are preferred to create a more parklike appearance.

iii. A park-pond shall have a flat contiguous park area adjacent to the detention/retention basin that is not subject to periodic inundation (ten-year storm frequency). This area shall be a minimum of one-half acre in size or larger, including the area of the one closest adjacent perimeter flat zone. This area shall meet the minimum improvements requirements set forth in Section 19.20.050(B) as may be found to be warranted and applicable to a park-pond by the director of parks and recreation. For park-ponds where the pond portion is over two and one-half acres in size, the size of the upper area shall be at least twenty percent of the area of the pond. This area shall be shaped to accommodate the placement of permanent park structures such as play features, multipurpose courts and shade pavilions.

iv. Side slopes in park-ponds shall not exceed a maximum three to one horizontal to vertical slope. Flatter side slopes are recommended.

v. If a two-tier park-pond is designed, then the lower tier flat area shall not be less than twenty percent of the upper tier flat area.

vi. The maximum depth of the pond portion of a park-pond shall not exceed ten feet for a two-tier park-pond and six feet for a one-tier park-pond.

vii. Perimeter areas around the pond shall be planted to create an attractive buffer zone around the park-pond. Plant materials and required irrigation system(s) must be installed and operational at the time the city accepts the facility. All irrigation and planting shall meet the park facilities standards referenced in Section 19.20.050.

viii. Signs shall be provided to inform the public of the dual park-pond purpose and to notify them of the potential safety hazard from stormwater detention/retention.

ix. Percolation tests at the bottom of the park-pond basin shall be performed according to ASTM 5126. Stormwater shall percolate within seventy-two hours or as may be approved by the city engineer or other designee of the city manager.

x. A fully accessible route that meets Americans with Disabilities Act (ADA) standards to the lower park area in the basin of the pond shall be provided.

xi. Grading, irrigation and turf in accordance with Section 19.20.050)B)(3)(d).

xii. Credit may be provided for that portion of the park-pond that exceeds the amount of parkland required to be deeded to the city pursuant to this title if the credit to be derived is within the same park zone and upon the affirmative recommendation of the director of parks and recreation.

b. Other ponds not serving as park ponds. Shall meet minimum placement, setback and landscaping requirements as established by the City of El Paso Stormwater Drainage Manual.

3. Linear park corridors and trail development. Trail corridors may be dedicated and con-

structed by the subdivider, and may serve as credit against required parkland, subject to the following conditions being met:

a. Where adjacent to private property lines on either side of the corridor, the trail corridor shall be a minimum of thirty feet in width;

b. Where the trail corridor is adjacent to a permanently preserved corridor such as a drainage channel or natural open space, the additional trail corridor width may be reduced to fifteen feet. A minimum of ten feet from the nearest edge of the trail adjacent to a private property line shall be maintained except where separated from such private property by a wall;

c. If the trail corridor is located adjacent to a street right-of-way, the trial corridor shall be a minimum of fifteen feet in width as measured from the adjacent back of curb. The additional portion of the corridor that is outside of the street right-of-way and that is a minimum of five feet in width shall be credited as lands meeting the parkland dedication requirements of Section 19.20.030.

d. Trails shall be a minimum of eight feet in width. Narrower trails will not count as credit towards parkland requirements. Trail surface material shall follow the requirements of the City of El Paso Park Development Standards. The City of El Paso may elect to contribute to the cost of the trail if a width wider than eight feet is deemed appropriate for that specific location;

e. Public access points to the corridor shall be provided at regular intervals. The linear areas adjacent to the corridor shall have open space, street ROW, or other opportunities for immediate and safe ingress/egress along at least seventy-five percent of the corridor length on one side or the other;

f. A zone that is a minimum of five feet wide along each side of the trail shall be improved with a natural non-irrigated landscape treatment, following guidelines contained in the parks facility standards referenced in Section 19.20.050.

g. Trails may be built on power line or other utility corridors, but in cases with corridor lands whose ownership is not fully transferable to the City of El Paso, only the lands under built trails and those improved areas meeting the requirements of this subsection will count towards the parkland dedication requirements of this chapter. In such cases, the easement holder or right-of-way owner must provide legal acceptance allowing the trail to be built with free public access provided in perpetuity;

h. Trail standards in this title and in the SDM may be modified by the city plan commission based upon the recommendation of the director of parks and recreation;

i. Trail corridor lighting shall not be required where earthen trails are provided nor where corridors are located in public right-of-way and street lighting is provided. Otherwise lighting may be required by the director of parks and recreation or designee in accordance with the parks facilities standards, the SDM and the provisions of the Dark Skies section of Title 18.

4. Open space lands and arroyos—types of land that are noted as areas that should be preserved in the El Paso Open Space Master Plan, such as natural arroyos, may be used to meet the land dedication requirements of this chapter:

a. For purposes of this subsection, the area open space to be used in applying the reduction shall be the acreage that is deemed acceptable for preservation by the director of the parks and recreation department and approved by the city plan commission;

b. Open space lands will not be required to meet the minimum development standards of Section 19.20.050.

c. One acre of open space dedication will count as one-half of an acre of required parkland dedication;

d. Other open space lands, such as arroyos, that exceed the parkland requirements of this chapter, may be accepted by the City of El Paso. The City of El Paso will assume maintenance of these areas. (Ord. 16882 § 2 (part), 2008)

(Ord. No. 17236, §§ 4, 27, 11-10-2009; Ord. No. 17251, § 11, 12-15-2009; Ord. No. 17528, § 1,

4-12-2011; Ord. No. 17811, § 6, 6-5-2012, eff. 6-11-2012; Ord. No. 18153, § 1, 4-1-2014; Ord. No. 19327, § 36, 4-26-2022)

19.20.040 Review by director of department of parks and recreation.

The director of parks and recreation, or his designee, shall make recommendations based upon the requirements of this chapter to the planning division at the appropriate time within the plat review process. Recommendations received pursuant to this chapter shall be noted on the written report prepared by the city manager or designee for the subdivision application, and shall be forwarded to the subdivider and the city plan commission, where applicable. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 17236, §§ 3, 8, 11-10-2009; Ord. No. 17396, § 15, 8-24-2010)

19.20.050 Standards for deeded parkland.

A. General Characteristics. Parkland deeded to the city as provided in this chapter shall meet the standards set forth below and in the SDM:

1. The parkland shall be placed in a location near the center of the subdivision or subdivisions that it serves, with the expressed goal that the park is no further than one-quarter mile measured by walking distance from any residence within the subdivision that it serves;

2. Where the subdivision is an initial phase of multiple phases, the park may be located so that it is accessible to the future phases, provided that the park meets the requirements of subsection (A)(1) above;

3. Parklands submitted for dedication shall be located so that users are not required to cross arterial roads to access the park site from within the subdivision, and shall not abut an arterial except in the following circumstances:

a. Parks over twelve acres may abut an arterial on one side; or

b. The arterial has no more than four lanes and has on-street parking; or

c. Parks permitted in subsection (B)(4)(a) (Alternate Park Type Table).

4. If the park is one acre or larger, the entire boundary of the parkland shall abut either a public or private street, dedicated open space or arroyo. Parks of less than one acre shall abut a public or private street, dedicated open space or arroyo on at least two sides. Buildings on lots that have frontage on streets that abut the park shall face the park. Residential lots may abut parkland provided that the subdivider incorporates the following standards:

a. Pedestrian connectivity between the parkland and adjacent lots is provided,

b. That a front build-to line, in accordance with the zoning ordinance, is delineated on the plat so that residential structures face the park, and

c. The park site shall share at least one boundary line with a public or private street;

5. The parkland should, when possible, be located adjacent to school sites, ponding areas, or public open space to facilitate shared facilities;

6. When parkland is deeded to the city as required by this title, the area of the park shall be calculated from the nearest property line or street right-of-way line, and not from the existing or proposed curb line of an adjacent street, unless park features are incorporated into the parkway, subject to an affirmative recommendation by the director of parks and recreation and approval by the city plan commission. Sidewalks and signs shall not count as park features that allow the inclusion of the parkway area as part of the park area calculation; and

7. Where possible, and as approved by the director of the parks and recreation department, parkland shall be designed and located within a subdivision to allow for an extension or connection to a public park or other public recreational facility within an abutting subdivision.

B. Minimum improvements for lands to be dedicated as parklands. Parkland deeded to the city shall meet the following minimum improvements described by this subsection.

1. The subdivider shall indicate the proposed parkland improvement(s) within the subdivision improvement plans as required in Section 19.08.010.

2. Construction of the required minimum parkland improvement(s) shall be in accordance with the approved subdivision improvement plans, and shall be completely installed and constructed by the subdivider within the time period specified for construction of subdivision improvements in this title.

3. An improved park shall, at a minimum, include the following:

a. Paving frontage, curbing, and gutter for all street frontages abutting the outside perimeter of the parkland;

b. Utility (water, sanitary sewer and electricity) extensions to the perimeter of the park at a location indicated by the director of parks and recreation and that are consistent with published EPWU rules;

c. An accessible route shall be installed per the Texas Accessibility Standards (TAS) on all street frontages abutting the outside perimeter of the parkland of a minimum width and construction to provide accessibility to individuals with disabilities as provided by the Texas Accessibility Standards (TAS). The sidewalk alignment and width shall be approved by the director of parks and recreation;

d. Grading, automatic irrigation and turf within the parkland boundaries shall be installed prior to the acceptance of the proposed parkland submittal. The design and installation shall be approved by the director of the parks and recreation department. The city plan commission may, upon an affirmative recommendation from the director of the parks and recreation department, allow parkland to remain undisturbed in its natural state;

e. One age appropriate play structure unit entirely covered by a metal shade canopy, for either ages two—five years or ages five—twelve years, with a minimum fifty-foot by fifty-foot user zone, from an approved park department list of acceptable alternatives, including an appropriate safety surface that meets industry requirements. If a play structure already exists within a dedicated park within one-fourth mile, other comparable amenities entirely covered by a metal shade canopy of comparable size may be provided such as basketball courts, outdoor exercise stations, splash pads, or picnic tables.

f. A minimum of two accessible shaded picnic tables, or four benches or a combination of benches and tables, per acre on concrete pads;

g. A minimum of one trash can per acre on a concrete pad;

h. Pedestrian-oriented perimeter lighting along adjacent public and private street rights-of-way and one light at the playground or focal point of the park;

i. Where open space lands to be left in an undisturbed state are accepted as required parklands, grading, automatic irrigation and turf establishment requirements shall be waived;

j. Standards.

i. Facilities and improvements provided by a subdivider on lands dedicated as parkland shall be designed and installed to meet the minimum standards of this chapter, the SDM and the parks and recreation department as established in the parks facilities standards, a copy of which is maintained by the director of the parks and recreation department. The parks facilities standards shall be approved by the city plan commission and the city council. The parks facilities standards may be changed from time to time, but each change shall be approved by the city plan commission and the city council.

ii. Facilities and improvements of a park developed for and owned by the city, regardless of whether the project is developed through City of El Paso Engineering and Capital Construction or the project is developer-generated, shall be designed and installed to meet the minimum standards of the following, or as otherwise approved

by the director of the parks and recreation department, in accordance with related federal, national, state, or local codes, including but not limited to the following:

1. International Play Equipment Manufacturer's Association (IPEMA);

2. Consumer Product Safety Commission (CPSC) Handbook for Public Safety;

3. American Society for Testing and Materials (ASTM);

4. Accessibility Standards for Play Areas through the ADA Accessibility Guidelines (ADAAG);

5. Illuminating Engineering Society of North America (IESNA RP-6-01);

6. Sports Turf Management Association (STMA); and

7. American Society for Testing and Materials (ASTM F08).

k. Street trees shall be provided in the parkway abutting the park at twenty-foot intervals. If the park does not abut street ROW on all sides, in addition to the street trees, shade trees shall be provided at a minimum of ten trees per one-fourth acre.

4. The subdivider may use one or more of the designs in the approved alternate park type table (a) and shall receive full credit towards parkland dedication requirements (unless otherwise stated in the table), provided all requirements listed in the table are met. In developments larger than thirty acres, at least two different park types are required.

Alternate Park Type Table:					
Park Type	**Tot. Lot**	**Pocket Park**	**Green**	**Plaza**	**Square**
Size	< ¼ acre	¼—½ acre	½—8 acres	¼—2 acres	½—5 acres
Location	Residential/Commercial/Mixed Use	Residential/Commercial/Mixed Use	Low-Medium Density Residential	Commercial/Mixed Use/ High Density Residential @ Intersection of roads on the City's MTP with street frontage on 4 sides; abutting buildings must face the plaza.	Mixed Use/High Density Residential @ Intersection roads on the City's MTP with street frontage on 4 sides; abutting buildings must face the square.
Requirements	B.3.a—k;	B.3.a—k; except that e. (play structure) is required in a residential area; but any of the following may be substituted in a commercial or mixed-use area: basketball court, outdoor exercise stations or gazebo with a combined structured shade area at least 900 sf & 4 picnic tables or benches or a combination.	B.3.a—k; except that the following may be substituted with approval of Parks Director for e. (play structure) when a play structure within a dedicated park already exists within ¼ mile of the green: basketball courts, outdoor exercise stations, splash pad, gazebo with a combined structured shade area at least 900 sf & 4 picnic tables or benches or a combination, trails, amphitheaters.	B.3.a—d, f—k: primarily hardscape surface; a focal point must be provided (such as a fountain or water feature or gazebo with a combined structured shade area at least 900 sf & 4 picnic tables or benches or a combination).	B.3.a—d, f—k; a focal point must be provided (such as a fountain, water feature, splash pad, outdoor exercise stations or gazebo with a combined structured shade area at least 900 sf & 4 picnic tables, benches or a combination).
Optional	N/A	Up to 10% of the dedicated acreage may be landscaped with shrubs, screenings or crushed rock.	Up to 10% of the dedicated acreage may be landscaped with shrubs, screenings or crushed rock.	Up to 10% of the dedicated acreage may be landscaped with shrubs, screenings or crushed rock.	Up to 10% of the dedicated acreage may be landscaped with shrubs, screenings or crushed rock.
Conditional	N/A	N/A	10—30% of the dedicated acreage may be open space left in an undisturbed state depending on topography, wildlife habitat, or aesthetic value; up to 50% credit for open space subject to approval of Parks Director.	N/A	N/A

5. The subdivider shall be required to submit development construction plans that conform to this title, the SDM and the parks and recreation department design, construction and specification standards. The parks and recreation department will review the construction documents for compliance with city park construction requirements. The developer must agree to standard city construction inspections of the park improvements.

C. Exceptions. For purposes of this chapter, off-site dedications accepted pursuant to Section 19.20.080 shall not be required to satisfy the requirements of subsection (B)(3) of this section at the time of acceptance of the deed by the city. The city shall require the approval of a development agreement as a condition of acceptance of an off-site dedication, requiring such improvements within two years of the recording of the first subdivision plat within the development by the property owner who deeded the parkland, or a subsequent purchaser.

(Ord. 16882 § 2 (part), 2008; Ord. No. 17236, § 27, 11-10-2009; Ord. No. 17251, § 11, 12-15-2009; Ord. No. 17528, § 1, 4-12-2011; Ord. No. 18153, § 2, 4-1-2014; Ord. No. 18806, § 1, 6-26-2018; Ord. No. 19327, § 37, 4-26-2022)

19.20.060 Exclusions from dedication requirement.

Exclusions. The following shall be excluded from the calculation for parkland dedication. In all instances, the burden of proof shall be on the subdivider to demonstrate that the plat meets the requirements of this chapter:

A. A residential replat of an area where the density has not been increased from the original subdivision, as evidenced by the original subdivision and replat. In the case of a replat where parkland was not originally provided, the parkland requirements shall prevail;

B. A replat or an amendment to a subdivision plat where the only change to the original subdivision plat is that easements or rights-of-way are eliminated, added or changed and there is no increase in density.

C. A nonresidential replat which changes the lot location or design, but where the acreage has not been increased, as evidenced by the original subdivision and replat;

D. A replat which changes the use of the original subdivision from residential to nonresidential, and the fees paid (or the equivalent fees which would have been paid based on parkland dedicated) on the original subdivision are more than or equal to the fees required on the replat;

E. A replat which changes the use of the original subdivision from nonresidential to residential, and the fees paid on the original subdivision are more than or equal to the fees required on the replat;

F. All property within a subdivision which is zoned planned mountain development district (PMD) whether for residential or nonresidential uses, as evidenced by the official zoning map;

G. Land shown within an amending subdivision where density is not increased, as evidenced by the original and amending subdivisions; or

H. Land shown within a subdivision, whether residential or nonresidential, which is designated for use as a public facility.

I. Land within a subdivision, whether residential or nonresidential, covered by an adaptive reuse overlay or designated as a transit oriented development (TOD) overlay, or other specially designated incentive district established by city council policy. (Ord. 16882 § 2 (part), 2008)

(Ord. No. 17576, § 1, 6-7-2011; Ord. No. 17753, § 1, 3-20-2012; Ord. No. 17905, § 6, 11-6-2012)

19.20.070 Deed conveyance.

Subdivision Dedication. Parkland to be conveyed as part of a residential subdivision application shall be designated as city property on both the preliminary and final plats. At the time the recording plat is submitted, the subdivider shall deliver to the planning official a warranty deed conveying fee simple title of all parkland shown on the final plat approved by the city plan commission. The city shall join as a signatory on the subdivision, but shall have no responsibility to

provide any public improvements shown within the approved final plat beyond the general responsibilities the city has to improve and maintain all of its parks. If the subdivider has deferred the obligation to install public improvements to serve a subdivision until after recordation of the final plat under this title, then the warranty deed as required in this section shall be submitted prior to final inspection of public improvements under this title. No acceptance of public improvements under this title shall be provided until the subdivider provides a warranty deed in accordance to this section. Delivery of a warranty deed does not constitute acceptance of any improvements by the city. The planning official will record the warranty deed following acceptance of the public improvements as provided in this title.

(Ord. 16882 § 2 (part), 2008; Ord. No. 17236, § 3, 11-10-2009; Ord. No. 17396, § 16, 8-24-2010; Ord. No. 18998, § 1, 10-29-2019)

19.20.080 Off-site dedication of parkland.

A. Application. Where a land study is submitted by a subdivider pursuant to Chapter 19.02, the city or the subdivider may request that an off-site dedication of parkland be accepted within the corporate limits or within the areas designated in the city's extra territorial jurisdiction (ETJ), as identified on an official map kept in the office of the planning official. An application for off-site dedication of parkland shall be filed by a subdivider with the city manager or designee.

B. Credit Applicability. Parkland to be deeded as part of an off-site dedication shall be entirely within the boundaries of the same park zone as the proposed subdivision. Park zone boundaries are designated by the El Paso Parks and Recreation Master Plan and are published by the City of El Paso Parks and Recreation Department.

C. An off-site parkland dedication shall be an option available to the subdivider where parkland credits derived are then used to reduce by an equivalent amount any subsequent parkland requirement generated by the submission of phased residential subdivisions. The credit shall be applied to residential subdivisions submitted from within the applicable park zone. Where a parkland dedication straddles two park zones, credits shall be allowed within either park zone if approved by the city plan commission, upon an affirmative recommendation of the director of the parks and recreation department.

D. Formula.

1. For purposes of determining the credit, the following procedure shall be used:

$$a - b = c$$

Where:

"a" is the amount of parkland dedicated or deeded to the city expressed in total acres (credit);

"b" is the amount of subsequent parkland acreage required to be deeded to the city pursuant to Section 19.20.030 for a residential subdivision, based on the parkland calculation rates in effect at the time of the submittal;

"c" is the amount of parkland credit available from the parkland dedicated or deeded. If a reduction exceeds the credit, the difference shall be the amount of required parkland to be dedicated or deeded to the city after reduction.

E. In no instance shall a parkland credit be from the value of the land dedicated or deeded in terms of fees it would have generated, or the market value of the land expressed in dollars. This parkland credit option may be exercised by the subdivider who dedicated or deeded the parkland to the city, or may be transferred to a subsequent purchaser of land within the applicable park zone(s), The subsequent purchaser must submit written proof of such a transfer to the city manager or designee. The city plan commission shall approve, upon recommendation by the director of the parks and recreation department, the residential subdivision(s) to which the credit shall be

applied. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 17251, § 11, 12-15-2009; Ord. No. 17396, § 17, 8-24-2010)

19.20.090 Providing private park facilities to satisfy required parkland dedication or fee requirements.

A. Private Park Facilities. Where park areas and recreational facilities are to be provided in a proposed single family, duplex, or multifamily development, the required parkland may be satisfied provided that the following criteria are met:

1. Facilities shall be privately owned and maintained by the future residents of the subdivision or by the owner of a rental facility.

2. Private ownership and maintenance of such areas and facilities shall be adequately provided for by recorded written agreement, conveyance, or restrictions;

3. The use of such areas and facilities shall be restricted for park and recreational purposes by a recorded covenant, which runs with the land in favor of the future owners of property and cannot be amended or removed without the consent of the city council;

4. The areas, improvements and facilities wishing to receive credit shall be reasonably similar or comparable to what would be required to meet public park and recreational needs of this chapter.

B. Recreational Facilities. No credit shall be given for recreational facilities other than the land upon which those facilities are located as defined in this chapter.

C. Size of Park Areas. Open turf or play areas and/or park recreational areas may be of any size provided that a total of one quarter (¼) acre total functional park space to meet the recreational needs of residents is provided. Functional park space areas may include parks, child play areas, multi-purpose courts, and other similar facilities. However, swimming pools, community, recreational or exercise buildings, and similar facilities shall not be eligible for credit. Any open turf or play area used for parkland dedication credit shall be commonly accessible by all residents and not be used in calculating minimum landscaping requirements in Title 18, any required zoning condition such as a landscaped buffer, be part of any required set back, any yard (front, side, rear) for any single-family home requirement placed as a condition to detailed site plan approval, or any other building code requirement.

D. Credit Calculation.

1. One acre of private parkland shall count as credit for one-half acre of the required parkland dedication. The parkland requirement may be satisfied in its entirety by providing private parkland which meets the criteria in this section.

2. If the required parkland dedication cannot be completely satisfied by providing private parkland, any remaining requirement can be satisfied as follows:

a. Through the dedication of public parkland.

b. Through improvements to existing parkland in the same park zone, provided that if the improvement costs are above $50,000.00 a developer participation agreement is entered into and complies with the provisions of the state statute that governs developer participation agreements or if below $50,000.00, a developer's agreement is entered into.

c. Payment of fees.

E. All private parkland dedication and improvements, improvements to existing parkland, or fees in lieu of dedication, or in combination shall require the approval of the city plan commission upon the affirmative recommendation of the director of parks and recreation.

F. The director of the parks and recreation department in the annual report required in 19.20.120 G. shall report the amount of private park land accepted for credit by the city plan commission at the time of plat approval. (Ord. 16882 § 2(part), 2008)
(Ord. No. 17238, § 1, 11-17-2009)

19.20.100 Provision for construction of additional facilities on new or existing public parklands in lieu of park fees.

A. Applicability. The city plan commission, upon an affirmative recommendation of the director of the parks and recreation department, may reduce the fees in lieu of parkland to be paid to the city as part of a subdivision application where additional recreational facilities beyond the minimum required improvements are provided. Up to a one hundred percent reduction of fees in lieu of parkland from the initial parkland dedication requirement proposed for single-family, two-family or multifamily development may be reduced depending upon the need for additional recreational facilities on new or existing parks.

B. Park locations in which the additional recreational facilities beyond the minimum required improvements can be provided are as follows:

1. Parks within the park zone of the subdivision application that generates the required fees, provided that if the improvement costs are above $50,000.00 a developer participation agreement is entered into and complies with the provisions of the state statute that governs developer participation agreements and if below $50,000.00, a development agreement is entered into.

2. Park within adjacent park zones if there is no park within the park zone of the subdivision generating the fees, provided that if the improvement costs are above $50,000.00 a developer participation agreement is entered into and complies with the provisions of the state statute that governs developer participation agreements and if below $50,000.00, a development agreement is entered into.

C. Additional recreational improvements may include but are not limited to:

1. Play structures for children ages two to five from an approved parks and recreation department list of acceptable alternatives, including safety surface and perimeter rock wall;

2. Play structures for children ages five to twelve from an approved parks and recreation department list of acceptable alternatives, including safety surface and perimeter rock wall;

3. Multipurpose, basketball or volleyball courts;

4. Picnic areas with a minimum of three tables with metal shade covers on concrete pads and trash receptacles;

5. Swings with safety surface and perimeter rockwall;

6. Tree plantings and additional landscaping.

D. In no instance shall a reduction be approved for required improvements to parkland as provided in Section 19.20.5(C), nor shall a reduction be approved for recreational improvements to parkland which are required to be provided by the sub-divider as part of a separate legal instrument, condition, covenant, contract, agreement, sale, ordinance or annexation agreement.

E. Validation of Costs. The sub-divider shall provide documentation to the city manager or designee at the time of final plat application filing sufficient to establish the validity of the estimated cost(s) that will be used to determine the reduction in fees under this chapter. The documentation shall accompany the request for a reduction in fees. The director of the parks and recreation department shall evaluate the documentation submitted and shall approve the value and percentage of reduction prior to any reductions given under this chapter. In cases where the estimated cost(s) of the improvement(s) is disputed, the value shall be as finally determined by the director of the parks and recreation department.

F. Improvements Completion Schedule. The developer participation agreement or development agreement shall contain a completion schedule for improvements proposed by a sub-divider and shall be submitted to the city manager or designee at the time the final plat application is filed. Improvement(s) to be provided by a subdivider pursuant to this chapter shall be shown on the subdivision improvement plans as required in Chapter 19.20. Construction of the improve-

ment(s) shall be completed in accordance with the time periods specified in the developer participation agreement or development agreement. Failure to complete the improvement(s) within the approved schedule shall be a violation of this chapter.

G. As part of the developer participation agreement or development agreement, the developer shall provide a performance bond or irrevocable letter of credit and a payment bond if required by statute, to the planning official for the value of the proposed improvements at the final plat application for the plat receiving the credit. (Ord. 16882 § 2(part), 2008)
(Ord. No. 17236, § 6, 11-10-2009; Ord. No. 17238, § 2, 1-17-2009; Ord. No. 17396, § 18, 8-24-2010)

19.20.110 Fee in lieu of parkland dedication.

A. When Applicable.

1. Residential Subdivisions. The city may require a cash payment in lieu of parkland dedication under the following circumstances:

a. When an area of parkland less than one acre is required to be dedicated, or less than two acres if there is an existing park within one-half mile, and upon the recommendation of the director of parks and recreation and the city plan commission;

b. Where the director of parks and recreation determines that the park needs of the subdivision would be better served by developing other parks in the same park zone;

c. In instances where the parkland to be dedicated does not meet the standards set forth in this chapter;

d. In instances where the required parkland dedication meets or exceeds two acres, the city plan commission, upon the recommendation of the director of parks and recreation, may require a reduction in land dedication of up to twenty-five percent and payment of the balance of the required dedication in improvements to the site or in fees in lieu of land dedication.

e. When the city accepts a combination of the following: parkland dedication, cash payment in lieu of land dedication, or bonus reductions received pursuant to Section 19.20.090.

2. Nonresidential Subdivisions. The subdivider shall be required to pay fees in lieu of the dedication of parkland dedication for all nonresidential subdivisions applications. Where the director of parks and recreation recommends that the park needs of that park zone would be better served by preserving existing open space lands on the property or by developing other parks in that park zone, the following alternatives may be used.

a. Where open space lands that meet the types noted for preservation in the City of El Paso Open Space Master Plan occur in the nonresidential subdivision, the city may accept a dedication of open space lands in lieu of, or in combination with the payment of park fees. The value of the land to be dedicated shall be equivalent to the fee amount required for that subdivision, and the proposed dedication must be at least one acre in size.

b. An amount equal to the fee required for the nonresidential subdivision may be used by the subdivider to provide additional park facilities in an existing or proposed park within the existing park zone. The types of facilities to be provided and the proposed location for those facilities shall be subject to approval by the director of parks and recreation.

B. Fee Calculation. Where the city requires or accepts payment of cash in lieu of the dedication of parkland, such payment shall be equivalent to the following:

1. Residential Subdivisions.

a. Single-family and two-family: one thousand three hundred seventy dollars per dwelling unit;

b. Multifamily: six hundred eighty dollars per dwelling unit.

2. Nonresidential Subdivisions. One thousand dollars per gross acre multiplied by the number of acres rounded to two decimal places, with a minimum of three hundred and thirty-three dollars for a subdivision of less than one-third acre.

3. These fees shall be indexed to any increase in the National Consumer Price Index (CPI) and adjusted no less frequently than every three years.

C. Form Tendered. A cash payment made pursuant to this chapter shall be tendered in the form of a cashier's check, payable to the City of El Paso. The cashier's check shall be submitted to the city manager or designee and shall accompany the recording plat submission.

D. Refunds. Under no circumstance shall fees received in lieu of parkland dedication required by this chapter be refunded to a subdivider, except as provided in Section 19.20.120(D).

E. In a subdivision where the density calculation for parkland results in a park site of less than one acre and the developer has paid fees in lieu of dedicating parkland, should the developer, within a period of three years following the recording of the initial subdivision, submit a plat for development of land contiguous to the land in which parkland fees were paid, the city shall have the option of refunding to the developer an amount equivalent to those parkland fees paid for the previous development and calculating the parkland requirements for the new subdivision plat based on the density for both the previously submitted subdivision plat and the new subdivision plat. The calculation shall be based upon the parkland dedication requirements in effect at the time of each subdivision plat submittal. For purposes of this subsection, a refund shall be made from park fees collected and available from within the applicable park zone for each subdivision. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 18348, § 1, 4-28-2015)

19.20.120 Parkland fees special fund.

A. Fund Established. The city shall establish a special fund for the deposit of all sums paid in lieu of parkland dedication pursuant to this chapter. The city shall account for all sums paid in lieu of parkland dedication with reference to the individual subdivisions involved, and all sums received shall be committed by the city within three years from the subdivision recordation. If an extension is granted for the subdivision recordation or subdivision improvements, the same extension shall apply to the time for commitment of park fees.

B. When Funds are Considered to be Committed. For purposes of this chapter, funds shall be considered committed:

1. When funds are encumbered for expenditure on equipment and materials;

2. When funds are set aside under an earnest money agreement for the purchase of parkland;

3. When funds are to be awarded under a bid in process; (or)

4. When funds encumbered are not expended because of delays by reason of strikes, court action or any similar impediment which renders it impossible or illegal to spend the money.

C. Time Extensions. Where the sums cannot be committed within the initial three-year time period, the director of the parks and recreation department may request time extensions for expenditure of the sums from the city plan commission in one-year intervals; except that no more than two one-year time extensions may be granted by the city plan commission. The extension request(s) shall be submitted in writing to the city manager or designee sixty days prior to the expiration period for sums to be committed by the city, and shall include a detailed justification for the extension request(s). If an extension is granted for the subdivision recordation or subdivision improvements, the same extension shall apply to the time for commitment of park fees.

D. Refund. If a developer has proof of payment of fees in lieu of park dedication for an approved subdivision, but the developer subsequently abandons development of the property as shown on the approved subdivision and conveys the property to the City for the sole purpose of use as public open space, the developer is entitled to a full refund at the time of the conveyance. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 18153, § 3, 4-1-2014; Ord. No. 18348, § 2, 4-28-2015)

19.20.130 Applicability.

A. Subdivision Related Dedication.

1. Submittal received on or after June 11, 1996.

a. Subdivision. A subdivision application filed with the city manager or designee on or after June 11, 1996 shall be subject to the parkland dedication regulations as herein codified.

b. Off-Site Dedication. Parkland proposed as an off-site dedication which application is filed with the city manager or designee on or after June 11, 1996 shall be subject to the parkland dedication regulations as herein codified.

2. Submittal prior to June 11, 1996, pursuant to Ordinance No. 9645, enacted February 28, 1989.

a. Subdivision.

i. Application in Process. A subdivision application filed as a preliminary plat, preliminary/final plat, final plat, correction plat or replat with the city manager or designee before June 11, 1996 shall be subject to the parkland dedication regulations contained in Ordinance No. 9645 enacted on February 28, 1989, except that this provision shall not apply to any application which expires before the subdivider obtains final approval, disapproval or conditional approval of the plat or replat.

ii. Recorded Plat. Parkland deeded to the city as part of a recorded subdivision before June 11, 1996 shall be subject to the parkland dedication regulations contained in Ordinance No. 9645 enacted on February 28, 1989.

b. Off-Site Dedication.

i. Application in Process. Parkland proposed as an off-site dedication which application was filed with the city manager or designee before June 11, 1996, and where the city accepts the off-sitededication after the effective date of the ordinance codified in this chapter, shall be subject to the parkland dedication regulations contained in Ordinance No. 9645 enacted on February 28, 1989, except as follows:

(A) When a reduction option is exercised by the property owner to a subsequent parkland requirement within the same park zone, the reduction shall be based on the parkland calculation rates and densities in effect at the time a subdivision is filed with the city manager or designee. The reduction shall be on an acreage basis, and shall not be from the value of the land dedication in terms of fees it would have generated, nor the market value of the land expressed in dollars, unless otherwise provided in the agreement by which the city accepted the off-site dedication.

(B) The area of the parkland deeded to the city as an off-site dedication shall not include the area to the centerline of a proposed public accessway to be dedicated through a subsequent subdivision, unless otherwise provided in the agreement executed by the city accepting the off-site dedication, or unless a public accessway fronting the parkland is dedicated as part of the off-site dedication.

ii. Off-Site Dedication Accepted by City. Parkland accepted by the city as an off-site dedication before June 11, 1996 shall be subject to the parkland dedication regulations contained in Ordinance No. 9645 enacted on February 28, 1989, except as follows:

(A) When a reduction option is exercised by the property owner to a subsequent parkland requirement within the same park zone, the reduction shall be based on the parkland calculation rates and densities in effect at the time a subdivision is filed with the city manager or designee, and the reduction shall not be from the value of the land dedication in terms of fees it would have generated, nor the market value of the land expressed in dollars, unless otherwise provided in the agreement by which the city accepted the off-site dedication.

(B) The area of the parkland deeded to the city as an off-site dedication shall not include the area to the centerline of a proposed public accessway to be dedicated through a subsequent subdivision, unless otherwise provided in the agreement executed by the city accepting the off-site dedication, or unless a public accessway fronting the parkland is dedicated at the same time as the off-site dedication.

3. Dedication of Parkland Prior to Ordinance No. 9645, enacted February 28, 1989. Where a subdivider dedicated parkland through an approved and valid land study (concept plan) prior to Ordinance No. 9645, that dedication may be reduced from the amount of parkland required in this title for any subdivision application filed within the original land study (concept plan) boundaries of the then-approved park zone. Where a reduction option is applied by the property owner to a subsequent parkland requirement, the reduction shall be based on the parkland calculation rates and densities in effect at the time a subdivision application is filed with the city manager or designee, and shall be on an acreage basis. A reduction shall not be from the value of the land dedication in terms of fees it would have generated, nor the market value of the land expressed in dollars, unless otherwise provided in an agreement executed by the city accepting the parkland.

B. Dedication through Non-Subdivision. Where the city accepted or required parkland which was not part of a subdivision-related dedication, and which was executed through an approved development agreement or other legal instrument prior to the effective date of the ordinance codified in this chapter, that dedication shall not be subject to the reduction option for a subsequent parkland requirement generated within a subdivision as provided in this title, unless otherwise provided in the agreement or other legal instrument executed by the city, or unless the agreement in which the park committed was executed prior to February 28, 1989. Where authorized, a reduction shall be based on the parkland calculation rates and densities in effect at the time a subdivision is filed with the city manager or designee. The reduction shall not be based on the value of the land dedication in terms of fees it would have generated, nor the market value of the land expressed in dollars.

C. Documentation Required. Where a reduction in the parkland dedication requirement of this title is requested on the basis of parkland dedicated prior to June 11, 1996, the subdivider shall submit to the city manager or designee the proper evidence to demonstrate that the provisions of this title governing applicability are applicable. The evidence may include, but shall not be limited to, the following: a copy of the filed deed conveying fee simple title to the parkland to the city, or other legal documentation demonstrating that the parkland is required to be dedicated to the city; a copy of an approved and valid land study (concept plan), where applicable; and a copy of the park zone approved as part of an off-site parkland dedication, where applicable. If a subdivider fails to submit the proper evidence as herein required, the requirements of this title as enacted on June 11, 1996 shall apply to all land within the boundaries of the original land study (concept plan) or approved park zone not previously platted, and no credit shall be given for previously dedicated parkland. (Ord. 16882 § 2 (part), 2008) (Ord. No. 17236, § 27, 11-10-2009)

Chapter 19.21

SIDEWALKS

Sections:

19.21.010 Purpose and applicability.

19.21.020 General requirements.

19.21.030 Sidewalk requirements for new streets.

19.21.040 Sidewalk requirements for existing streets.

19.21.050 Waivers and deviations.

19.21.010 Purpose and applicability.

A. Purpose. Sidewalks are required as a part of subdivision plat approval as outlined within this chapter and in Title 13, Chapter 04 to help the City of El Paso achieve the following:

1. Promote the mobility, health, safety, and welfare of residents, property owners, and visitors to the City of El Paso and to implement objectives and strategies of the El Paso Comprehensive Plan;

2. Improve the safety of walking by providing separation from motorized transportation and improving travel surfaces for pedestrians;

3. Improve public welfare by providing an alternate means of access to transportation and social interaction, especially for children, other citizens without personal vehicles, or those with disabilities;

4. Facilitate walking as a means of physical activity recognized as an important provider of health benefits;

5. Establish minimum criteria for the development of sidewalks as a part of the pedestrian element of the transportation system within the city and its extraterritorial jurisdiction (ETJ).

B. Applicability. These requirements shall apply to all development within the city and its ETJ.

C. Exceptions. The city plan commission may approve an exception to the requirement for sidewalks on individual streets or within subdivisions:

1. In existing single-family residential neighborhoods where sidewalks are not present and have not historically been provided or comply;

2. On local streets within an approved subdivision where all the lots provide a minimum one-half acre lot area and the adjoining properties have no sidewalks;

3. On mountain residential and divided mountain residential streets within an approved mountain development subdivision;

4. On local streets within an approved planned unit development where pedestrian access is provided within the approved subdivision through an alternative sidewalk design not installed within the street right-of-way; provided, however, that an easement may be required by the city manager or designee to provide for the installation of traffic signage and signalization, utility services, neighborhood delivery and collection box units, or other similar facilities;

5. On local streets within an approved subdivision which meet all of the following criteria as determined by the city plan commission:

a. A characteristic of the neighborhood is that no sidewalks have been required to date,

b. The subdivision adjoins or lies within a neighborhood in which buildings or structures have been constructed on at least fifty percent of the lots within the neighborhood, and

c. The type of subdivision and intensity of land use is compatible with the character of the neighborhood;

6. On streets within neighborhoods that meet the criteria in Title 20 for infill development, where a street construction project, whether local, state or federal, has been awarded and the project includes construction of the sidewalks; and

7. In areas with severe topography or other natural constraints that will constrain proper implementation of this title. (Ord. 16882 § 2 (part), 2008)

(Ord. No. 17236, § 27, 11-10-2009; Ord. No. 17923, § 1, 1-2-2013)

Editor's note—Section 3 of Ord. No. 17923 states: "These requirements shall apply to both public and private streets."

Section 4 of Ord. No. 17923 states: "Where there is a conflict between the requirements of Title 13.04 and this chapter, the more restrictive shall generally apply and be required as part of the subdivision plat approval unless a waiver or exception is granted in accordance with Chapter 19.48."

19.21.020 General requirements.

General Requirements. The following general requirements and the requirements contained in the street design manual (SDM) apply to the provision of all sidewalks throughout the city and ETJ.

A. Standards Not Otherwise Specified. Where facility standards and requirements are not otherwise specified within this chapter, the design of pedestrian facilities shall follow the city's code, Chapter 13.04, the Street Design Manual (SDM) and other city Sidewalk Design Standards and applicable state and federal laws and regulations.

B. Maintenance. All sidewalks, sidewalk amenities, and landscaping in the right-of-way shall be maintained by the adjoining property owner unless otherwise specifically provided for by public policy.

C. Location and Width of Sidewalks. Unless noted otherwise:

1. Sidewalks shall have a minimum clear path width of a minimum of five feet on local streets in all zoning districts primarily intended for single-family residential development when located adjacent to the property line. Sidewalks located next to the curb along local streets shall be a minimum five feet in width. Sidewalks along arterials shall have a minimum of five feet in width;

2. Sidewalks shall have a minimum clear path width of a minimum of five feet in all other locations;

3. Sidewalks in areas determined to be high pedestrian traffic areas or pedestrian-oriented developments by the CPC may be required to be wider than the minimum widths listed herein by the CPC;

4. Sidewalks shall be located in existing areas to match the width and location of existing walks of the block in which they are located. Vacant blocks shall comply with the sidewalk requirements of this title;

5. Sidewalks shall not be located next to the curb on collectors or arterial streets except when an exception is approved by the CPC or designee at the time of subdivision plat approval. Such exception shall be in accordance with Chapter 19.48 and due to actual physical or topographic constraints. Sidewalks on TXDOT facilities shall be as approved by TXDOT;

6. Sidewalks may be required to improve connectivity between subdivisions, to schools, parks, bus stops and retail areas by the CPC at the time of plat approval;

7. The CPC may approve alternative sidewalk design and locations at the time of plat approval including meandering or curvilinear sidewalks provided such design and location meets the intent of this title.

D. Timing of Improvements. The timing of sidewalk construction shall be as required by this chapter and Chapter 13.04, unless a developer agreement between the property owner and the city provides for alternative timing for construction or security has been provided in accordance with this title.

E. Internal Pedestrian Circulation. In addition to sidewalks within the right-of-way, internal pedestrian circulation shall be provided in new development or redevelopment serving any non-residential and at any governmental facility, school, church, or other place of public assembly. Sidewalks shall be installed to connect all buildings to one another and to parking areas and to connect the development to the public street system. All such sidewalks shall be protected from encroachment by parked vehicles.

F. Curb ramps shall be provided within a street right-of-way wherever an accessible route for pedestrians (sidewalk or pedestrian way) is required. The design and construction of curb ramps shall be in accordance with the SDM and shall comply with the Texas Accessibility Standards.

G. Compliance with SDM. Sidewalks shall be constructed in compliance with the standards in the City of El Paso SDM and Chapter 13.04.

(Ord. 16882 § 2 (part), 2008; Ord. No. 19327, § 38, 4-26-2022)

19.21.030 Sidewalk requirements for new streets.

A. Sides of the Street. Sidewalks shall be required on both sides of all new streets except in accordance with Chapter 13.04.

B. Timing of improvements.

1. Sidewalks, landscape and curb ramps shall be provided by the developer at the time of road construction on all new freeway frontage roads unless disallowed by TXDOT, arterial streets, or collector streets, except on individual lots fronting on or siding up to such street. The developer may choose to provide security in accordance with this chapter and to delegate the requirement to construct such sidewalks, landscape and curb ramps to the purchaser of a lot or the purchaser's builder as a part of the building permit for a period of three years from the date of acceptance of the adjacent street. However, at the end of the three-year time period, the developer shall make arrangements to complete the missing sidewalks, landscape and curb ramps or in lieu of such arrangements, the city may utilize the security to complete the sidewalks, landscape and curb ramps. As sidewalks, landscape and curb ramps are completed during the three year period, the developer may request the partial release of security for the completed portions in accordance with this title.

C. Financial guarantee. A developer of a new subdivision may contribute the projected cost of the sidewalk construction into an escrow fund or through other form of financial guarantee to delay the time of construction of the sidewalk according to procedures within this title and Chapter 13.04. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 17236, § 27, 11-10-2009; Ord. No. 18056, § 14, 8-6-2013)

19.21.040 Sidewalk requirements for existing streets.

A. Sides of the Street. Sidewalks shall be required on both sides of existing collector streets, arterial streets, and the external sides of the frontage roads of freeways.

B. Location. Sidewalks shall be required along block faces of existing local streets where redevelopment is occurring in any of the following categories or combinations of categories:

1. The central business district designated by the El Paso comprehensive plan;

2. Designated pedestrian routes in a neighborhood plan, corridor plan, or other small area plan adopted by the City of El Paso;

3. Locations that would connect existing or otherwise required sidewalks by closing gaps of less than two hundred and fifty feet;

4. Locations in which an adjacent property has a public sidewalk along the same block face;

5. Street frontages in all developments except the following:

a. Developments intended primarily for single-family residential purposes and where sidewalks are not present,

b. Along local and collector streets in developments intended primarily for warehousing, manufacturing, and industrial uses,

c. Developments intended to preserve agricultural activities and open space.

C. Required with Street Improvement. Any land development or subdivision that triggers a requirement for any street improvements along an existing collector street, arterial street, or freeway frontage road shall include sidewalk improvements. The sidewalks shall be provided concurrently by the developer with other street improvements except as otherwise provided in this chapter and Chapter 13.04.

D. Site Plan. No new or amended site plan shall be approved for development on any property in a location wherein sidewalks are required unless applicable provisions for required sidewalks are included in the site plan.

E. Permits. A certificate of occupancy, or any other type of final approval for a residential development that does not require a certificate of occupancy, may not be issued until required sidewalks are installed or brought up to applicable standards when there is development activity requiring:

1. A permit for new construction of a structure other than an accessory structure,

2. A permit for a major addition to a structure other than an accessory structure, or

3. A permit for major alterations or repairs to a structure other than an accessory structure.

F. Removal Requires Replacement. An existing sidewalk may not be removed unless a replacement sidewalk is constructed to standards current at the time of removal. (Ord. 16882 § 2 (part), 2008)

19.21.050 Waivers and deviations.

A. Waivers. A complete waiver of the requirement for sidewalks should be rare and allowed only where there are extreme factors. The waiver shall be approved by the city plan commission at the time of plat approval upon a favorable recommendation of the city manager, or designee and shall be documented with supporting data that indicates the basis for the decision.

B. Deviations. Deviations from these requirements and the SDM and other city Sidewalk Design Standards may be allowed by the city manager or designee as part of site plan review when necessary due to the physical circumstance of the street or when necessary to accomplish adopted development goals of the city.

1. The specific nature and justification for any deviation must be documented and authorized in writing by the city manager or designee.

2. Deviations should be minimal and consist primarily of changes to required width of clear path or alignment within the right-of-way.

3. Deviations shall not allow a minimum clear path width of less than three feet.

(Ord. 16882 § 2 (part), 2008; Ord. No. 19327, § 39, 4-26-2022)

Chapter 19.22

FIRE LANES AND FIRE DEPARTMENT ACCESS

Sections:

19.22.010 Reference.

19.22.010 Reference.

See the city's adopted fire code. (Ord. 16882 § 2 (part), 2008)

Chapter 19.23

EASEMENTS, BLOCK AND LOT DESIGN AND IMPROVEMENT STANDARDS

Sections:

19.23.010 General.

19.23.020 Lot area.

19.23.030 Blocks—Determination and regulation of size.

19.23.040 Lots—Determination and regulation of size.

19.23.050 Monuments and markers.

19.23.010 General.

A. Easements for New Development.

1. For new development, all necessary on-site easements shall be established on the Final Plat and not by separate instrument, and they shall be labeled for the specific purpose and to the specific entity, if other than the city, for which they are being provided.

2. Exceptions. Such easements may be permitted to be established by separate instrument only in the following limited circumstances:

a. If requested by the entity providing services with the easement;

b. If permitted by the city manager, or designee or the EPWU; and

c. If temporary easements are needed for temporary road or drainage improvements.

3. The ownership, maintenance, and allowed uses of all designated easements shall be stated on the plat. Examples include the following: a water, wastewater or drainage easement, which is dedicated to the city for a water or wastewater line or for a drainage structure; an access easement, which is dedicated to the public for unrestricted access purposes; a fire lane easement, which is dedicated to the city and fire suppression and emergency medical service providers for access purposes; and an electrical, gas or communications easement, which is dedicated to the specific utility provider that requires the easement; and so on.

B. Fencing.

1. Utility Easement. A wall, fence or screen shall be permitted over any utility easement provided that the easement remains fully accessible to the city for maintenance and repair purposes.

2. Drainage Easement. A wall, fence or screen shall be permitted over any drainage easement if the water flow within the easement is not adversely affected by the wall, fence or screen.

3. Removal. In addition to all other remedies provided by this title, the city may summarily remove any wall, fence or screen erected in violation of this title, and the city shall not incur any liability or assume any duty to compensate the owner or replace the wall, fence or screen. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 17236, § 27, 11-10-2009)

19.23.020 Lot area.

Easements Included. Lot area shall be computed inclusive of all required public and utility easements. However, the area of required easements on a lot shall in no case exceed one-half of the lot size. If the property owner disputes the total easement area required for any lot, the owner shall submit a written computation of the percentage of the lot occupied by easements to the city manager, or designee. The city manager or designee, shall in coordination with affected entities, consider a reduction in the area of required easements for the lot. (Ord. 16882 § 2 (part), 2008)

19.23.030 Blocks—Determination and regulation of size.

A. Determination Criteria. The length, width, placement, and shape of blocks shall be determined with due regard to the following:

1. Provision of adequate building sites suitable to the particular needs of the type of use contemplated;

2. Zoning and development agreement requirements as to lot sizes, setbacks and dimensions; and

3. Convenient access, circulation, traffic control, mobility in general and safety of street traffic

and for pedestrians or bicyclists traveling to a public park, public open space or school site or other facility within or close to the neighborhood.

B. Streets. Intersecting streets, which determine the lengths and widths of blocks, shall be provided in accordance with Chapter 19.15 to serve cross-traffic adequately, to provide adequate fire protection, and to conform to customary subdivision practices.

C. Block Lengths. Block lengths shall be in accordance with Chapter 19.15. (Ord. 16882 § 2 (part), 2008)

19.23.040 Lots—Determination and regulation of size.

A. Zoning District Requirements, if Applicable. Lots shall conform to the minimum requirements of the established zoning district in which they are located, if located within the city's corporate limits.

B. Lot Frontage. All lots shall have at least one boundary abutting either a private or public street.

1. Each residential lot in the subdivision shall have a minimum frontage on a public or private street as required by the applicable zoning unless other provisions have been authorized through planned development approval.

2. Each nonresidential lot shall have a minimum frontage on a public or private street as required by the applicable zoning unless other provisions have been authorized through planned development approval.

3. No residential lot frontage shall be allowed on arterial streets, except in accordance with Section 19.15.060(F).

C. Flag or Panhandle Lots. Panhandle lots shall be discouraged in residential areas except when, due to unique parcel configuration it is the only way to develop the property, and it shall be considered an exception. It may be allowed as an alternative subdivision design in accordance with this title. It shall also be discouraged in commercial areas except when it is part of a master planned commercial center or commercial unit development with cross access easements allowing additional access. The maximum length of a commercial panhandle shall be one hundred feet. The city plan commission must authorize an exception allowing the flag or panhandle lots in accordance with Chapter 19.48 at the time of preliminary plat approval. Such lots shall otherwise conform to the development standards for construction, and shall be based on the following design requirements.

1. All lots and structures shall be arranged so the structures and their addresses are visible from the public street from which the lot takes access.

2. Residential Uses. The maximum length of the panhandle shall be one hundred feet. The minimum width of the panhandle shall be twelve feet to serve one dwelling unit. A maximum of two dwelling units may jointly use a panhandle, provided that the minimum cumulative width of the panhandle is twenty-four feet. Maintenance of the common driveway, in cases of joint use, shall be ensured by deed restrictions and a note of such deed restrictions shall be placed on the face of the plat. In the event that a property cannot be developed whatsoever without an exception being granted by the city plan commission to allow a panhandle exceeding one hundred feet, any buildings served by such panhandle will be required by the fire marshall to be sprinklered and have a hard wired alarm system. A note shall be added to the recording plat and the subdivision improvement plans indicating whether buildings are required to be sprinklered within the subdivision, and which lot numbers have such requirement.

D. Lot Depth. The minimum depth of each lot shall conform to requirements of the zoning district in which the lot is located, if applicable.

E. General Shape and Layout. The size, width, depth, shape and orientation of lots, and the minimum building setback lines shall conform to standards set forth herein or within the appropriate zoning district, as applicable. Lots shall be designed to assure the adequate provision of public facilities and the purpose of these subdivision regulations, taking into consideration the location and size of the subdivision and the nature of the proposed uses.

F. Irregularly-Shaped Lots. Irregularly-shaped lots shall have sufficient width and depth in accordance with the zoning ordinance to provide a reasonable building pad without encroachment into the required front, side or rear yard setbacks and to provide access including a driveway.

G. Side Lot Line Configuration. The subdivider shall make every effort to design the lots so that side lot lines are ninety degree angles or radial to street right-of-way lines.

H. Double Frontage Lots.

1. Single-family or duplex double frontage lots shall be prohibit, except where they may be essential to provide separation of single-family or duplex residential development from arterial streets, or to overcome a specific disadvantage or hardship imposed by topography or other factors. Such double frontage lots allowed within the city limits shall provide hardscape improvements to the parkway as set forth in the SDM, to be maintained by the city.

2. Where lots have double frontage, are not screened, and/or are provided access directly onto an arterial street, building setback lines shall be established for each street side.

3. Lots in single-family or duplex residential subdivisions and lots measuring less than one hundred feet wide and located within multifamily residential subdivisions may abut a street on both the front and rear boundaries, but only under the following conditions:

a. One lot boundary must abut an arterial street or freeway;

b. A reservation or easement at least ten feet wide, across which there shall be no right of access, shall be designated beside the abutting arterial street or freeway;

c. The city plan commission may require that a parkway at the rear of a double frontage lot be landscaped or other aesthetic treatment be provided by the subdivider, subject to the approval of the city plan commission to provide a visual and physical separation between the development and the street.

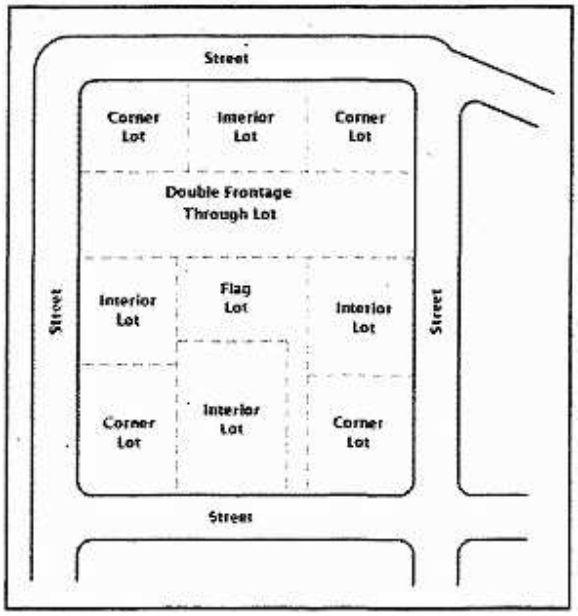


Figure 19.17-1: Types of Lots

I. Lots Adjacent to or in Floodplains. Subdivision of property in a designated floodplain must meet the requirements for floodplain management in the city's adopted flood hazard prevention ordinance and/or chapter of the city code, as applicable.

J. Remnants. No remnants of land shall be allowed in the subdivision which does not conform to the lot requirements of the El Paso Zoning Ordinance, except where proposed easements, rights-of-way or open space areas are approved by the city plan commission.

K. A lot shall not be divided by the corporate limits boundary, state line, or by another lot, street or alley or any other property. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 17251, § 12, 12-15-2009; Ord. No. 19327, § 40, 4-26-2022)

19.23.050 Monuments and markers.

Requirements. The location of all monuments shall be in accordance with the SDM and is subject to approval by the city manager or designee. (Ord. 16882 § 2 (part), 2008; Ord. No. 19327, § 41, 4-26-2022)

Chapter 19.24

MOUNTAIN DEVELOPMENT AREA (MDA) STANDARDS

Sections:

19.24.010 Applicability.

19.24.020 Procedure and requirements.

19.24.030 Development standards.

19.24.040 Reports required.

19.24.010 Applicability.

A. General Provisions. A filed subdivision application, or any portion thereof, which incorporates land located within the mountain development area as described in Appendix 111 shall be subject to the regulations contained within this title except as modified by this chapter. To the extent that there is any conflict between any of the standards provided elsewhere in this title and the standards contained in this chapter, the standards contained in this chapter shall control with respect to the mountain development area.

B. Purpose and Intent. The mountain development area is characterized by slope, vegetation, drainage, rock features, geologic conditions and other physical factors. These regulations are intended to:

1. Preserve the scenic quality of the Franklin Mountains;

2. Reduce the physical impact of hillside development by allowing innovative site and architectural design, minimizing grading and requiring restoration of graded areas;

3. Reduce water runoff, soil erosion and rock slides by minimizing grading and by requiring re-vegetation;

4. Utilize appropriate engineering technology to eliminate unstable slope and soil erosion;

5. Permit reasonable development which is compatible with the characteristics of the mountain development area;

6. Provide vehicular and emergency access which is safe, convenient, and compatible with the terrain of the land. (Ord. 16882 § 2 (part), 2008)

19.24.020 Procedure and requirements.

A filed subdivision application or any portion thereof, for property within the mountain development area shall follow the general procedural requirements for plat review and approval as provided in Chapter 19.37 of this title. The city manager, or designee, shall make a report of the staff's written comments and recommendations in writing to the city plan commission, or city manager, or designee where administrative approval is authorized, prior to any action on the subdivision application. However, prior to city plan commission action, all subdivision applications within the Mountain Development Area shall be presented to the open space advisory board for advice and comments, provided, however, that failure of the open space advisory board to provide comments to the city plan commission prior to the city plan commission meeting in which the plat will be considered, shall not prevent the city plan commission from taking action on the plat and shall not be a basis for denial of the plat if the plat conforms all other provisions of Title 19. (Ord. 16882 § 2 (part), 2008)

(Ord. No. 17349, § 1, 7-13-2010)

19.24.030 Development standards.

The subdivider shall comply with the following development standards, in addition to those identified in Article 2, Subdivision Standards, and shall incorporate the requirements within the subdivision application.

A. Drainage and Erosion.

1. All necessary erosion control measures shall remain in place until effective stabilization occurs.

2. Erosion control shall utilize live native revegetation to the extent reasonably possible.

3. The existing natural drainage system on the property may be used to satisfy the stormwater drainage requirements of this title when recommended by the city manager or designee and approved by the city plan commission based on findings of hydrology and storm drainage report.

4. Ponding areas used as stormwater drainage facilities shall not be permitted, except where

recommended by the city manager or designee and approved by the city plan commission. Ponding areas shall remain undisturbed in their natural state to the extent reasonably possible.

5. No existing watercourse or other natural drainage system carrying more than five cubic feet per second in a one hundred year frequency storm, whether on-site or off-site, shall be disturbed by any building development or construction activity within the proposed subdivision unless no other reasonable drainage alternative exists as recommended by the city manager, or designee and approved by the city plan commission.

6. All floodways in floodplain areas shall be dedicated as drainage easements or rights-of-way.

B. Vegetation and Re-vegetation.

1. Vegetation and re-vegetation shall be required on all disturbed areas. If in the course of construction of buildable areas, non-buildable areas are disturbed, the subdivider shall restore the formerly undisturbed areas through the replanting of appropriate native, adaptive and drought tolerant re-vegetation to mitigate soil erosion. For purposes of this requirement, appearance features which are compatible with the area shall be allowed when approved by the city manager or designee.

2. Existing natural vegetation on the property shall be retained in its natural state, except where necessary for the construction of subdivision improvements and buildings or to replace or improve undesirable vegetation.

C. Fire Protection. All lots shall be supplied with adequate fire protection in the form of fire hydrants capable of sustaining a flow rate as follows (as evidenced by flow tests), and spaced at intervals of not more than five hundred feet:

Flow Rates (gallons per minute)	**Structures Sprinklered**
500 to 999	All buildings
1,000 to 1,499	All buildings exceeding three thousand square feet
1,500 or more	None required

A note shall be placed on the subdivision improvement plans which indicates whether or not buildings within the subdivision are required to be sprinklered based on the flow rate requirements of this subsection.

D. Grading, Cuts and Fills. Grading allowed within a subdivision shall be based on the concept of minimal disturbance, and not on maximum buildable footage.

1. Exposed slopes of surfaces of excavation or fill shall comply with the requirements of the geotechnical report, except as otherwise recommended by the city manager, or designee and approved by the city plan commission.

2. The maximum vertical height of a cut or fill shall be fifteen feet, except that the city manager, or designee may recommend and the city plan commission approve a greater vertical height when necessary.

E. Streets.

1. Streets shall not exceed eleven percent grades.

a. Under special site-specific circumstances the eleven percent grades can be exceeded for short distances with the approval of the city manager or designee.

b. Streets with grades in excess of eleven percent shall be permanently signed for no parking.

c. Where a street grade exceeds eleven percent, buildings on lots fronting and accessed by the street shall be required to be sprinklered by the city plan commission when recommended by the city manager, or designee and the fire chief.

d. If the only access to a subdivision is by a street with a grade exceeding eleven percent, then all structures in the subdivision are considered to be accessed by a street exceeding eleven percent and required to be sprinklered. A note shall be placed on the subdivision improvement plans which indicates whether or not buildings within the subdivision are required to be sprinklered based on the requirements of this subsection.

2. Mountain residential and divided mountain residential streets shall be designed to meet a design speed as follows:

a. Twenty miles per hour when the street is designed to carry an average daily traffic (ADT) volume of less than two hundred vehicle trips;

b. Twenty-five miles per hour when the street is designed to carry an average daily traffic (ADT) volume of two hundred or more vehicle trips;

c. Twenty-five miles per hour when the street is designed as a stub street.

3. Mountain Residential Street. A mountain residential street is intended to reduce roadway impact to environmentally sensitive areas and to protect landscape and topography, and shall only be used for development of property within the mountain development area.

a. The mountain residential street carries residential neighborhood traffic, and provides direct access to abutting properties. This street shall carry traffic from within the neighborhood and shall provide the safest environment.

b. Mountain residential streets shall be designed to discourage through traffic unless connection to streets outside the subdivision is recommended by the city manager or designee.

c. The total right-of-way width for a mountain residential street shall be twenty-three feet; which shall include the following:

i. Two ten-foot driving lanes;

ii. Header curbing;

iii. No sidewalks;

iv. No parkways;

v. Utility easements; as needed within the subdivision to accommodate utility service connections.

d. On-street parking shall be prohibited. Designated parking areas may be provided on property adjacent to the street right-of-way.

4. Divided Mountain Residential Street. A divided mountain residential street is intended to reduce roadway impact to environmentally sensitive areas and to protect landscape and topography, and shall only be used for development of property within the mountain development area.

a. The divided mountain residential street carries residential neighborhood traffic, and provides direct access to abutting properties. This street shall carry traffic from within the neighborhood and shall provide the safest environment.

b. Divided mountain residential streets shall be designed to discourage through traffic unless connection to streets outside the subdivision is recommended by the traffic engineer.

c. The total right-of-way width for a divided mountain residential street shall vary based on the width of the median, but shall include as a minimum of the following:

i. Two ten-foot driving lanes;

ii. Header curbing;

iii. One median of variable width with header curbing;

iv. No sidewalks;

v. No parkways;

vi. Utility easements; shall be provided as needed within the subdivision to accommodate utility service connections.

d. On-street parking shall be prohibited. Designated parking areas may be provided on property adjacent to the street right-of-way.

F. Streetlighting. The subdivider shall furnish and install one streetlight at each street intersection. The design and installation of streetlights shall be in accordance with the development standards for construction.

G. Panhandle Lots for Residential Uses. Panhandle lots for residential uses shall be permitted to reduce grading and cut and fill. The maximum length of the panhandle shall be seven hundred fifty feet. The minimum width of the panhandle shall be twelve feet to serve one dwelling unit. A maximum of four dwelling units may jointly use a panhandle, provided that the minimum cumulative width of the entire common driveway is twenty feet. Maintenance of the common driveway, in cases of joint use, shall be ensured by deed restrictions and a note of such deed restrictions shall be

placed on the face of the plat. Residential lots with panhandles in excess of one hundred feet will be required to provide residential sprinkler systems and hard wired alarm system on structures. A note shall be added to the recording plat and the subdivision improvement plans indicating whether buildings are required to be sprinklered and have hard wired alarm systems within the subdivision, and which lot numbers have such requirement.

H. Signage. Traffic control signs shall be permitted to be installed on shared sign posts to reduce visual clutter in the subdivision.

I. Driveway Access.

1. The city plan commission may approve a driveway length in excess of two hundred fifty feet, and up to a maximum of seven hundred fifty feet, when the subdivider provides evidence of all of the following:

a. A driveway grade at a maximum horizontal distance in feet is provided as follows:

Driveway Grade	Maximum Grade Length (horizontal distance in feet)
12—13	700
14—15	350
16—18	200

Where a driveway grade exceeds eleven percent, buildings on lots fronting the driveway shall be required to be sprinklered by the city plan commission when recommended by the city manager or designee and the fire chief. A note shall be placed on the subdivision improvement plans which indicates whether or not buildings within the subdivision are required to be sprinklered based on the requirements of this subsection; and

b. The driveway is of asphalt or concrete construction to support firefighting and other emergency apparatus.

2. For purposes of this subsection, the driveway length shall be calculated from the abutting street to the nearest face of the primary structure.

3. The city plan commission may grant an exception when it makes a finding pursuant to Chapter 19.48 and allow a greater driveway length than seven hundred fifty feet, the approval shall be subject to the building construction being sprinklered with a hard wired alarm system. A note shall be added to the recording plat and the subdivision improvement plans indicating whether buildings are required to be sprinklered and have hard wired alarm systems within the subdivision, and which lot numbers have such requirement. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 17236, § 27, 11-10-2009; Ord. No. 17396, § 19, 8-24-2010)

19.24.040 Reports required.

A filed subdivision application on property within the mountain development area, or portion thereof, shall be accompanied by five copies of the following:

A. Soils Report. A soils report containing all of the following information:

1. Soil conservation map of the property, delineating soil types;

2. An accurate topographic map;

3. Major soil hazard ratings in relation to the total area of development;

4. Percentage of area to be disturbed in relation to the total area of development.

B. Grading, Drainage and Erosion Plan. A grading, drainage and erosion plan containing all of the following information:

1. Grading plan showing the existing topography and proposed grades, including elevations, lines and grades;

2. A flood analysis for stream channels that occur on the property based on the following criteria:

a. One hundred year storm event,

b. The peak discharge of stormwater,

c. Provisions for storm drainage;

3. A map indicating the on-site and off-site drainage area contributory to the property;

4. Specific erosion control methods to be used on the disturbed areas;

5. Calculations and proposed details used for design and construction, including:

a. Rainfall intensity,

b. Soil stability,

c. Land slope and topography,

d. Condition of the soil surface and land management methods in use,

e. Surface cover, grass, shrubs and pavement;

6. A geotechnical report for all cuts and fills which addresses stability.

C. Vegetation Preservation and Protection Report. A vegetation preservation and protection report containing all of the following information:

1. General description of existing vegetation and proposed use of new vegetation;

2. The vegetation to be removed and method of disposal;

3. The vegetation to be planted;

4. Slope stabilization measures to be installed. (Ord. 16882 § 2 (part), 2008)

Chapter 19.25

ADDITIONAL REQUIREMENTS

Sections:

19.25.010 Postal delivery service.

19.25.020 Subdivision identification signs.

19.25.030 Community facilities.

19.25.010 Postal delivery service.

A. Every subdivision shall provide for appropriate mail receptacles for postal delivery service. The subdivider shall coordinate with the responsible entity in determining the type of delivery service for the proposed subdivision and the location and installation of any mail receptacles. A copy of an agreement between the subdivider and the responsible entity shall accompany the submission of the recording plat and shall serve as verification that coordination has occurred. The terms of the agreement are not subject to review by the city.

B. Location. Mail receptacles shall be placed in a location that is convenient, accessible, safe and efficient to all lots in the subdivision, and shall be subject to the following location standards:

1. Located in an area with a slope of no more than one-quarter inch per foot;

2. Located in an area that is illuminated by streetlighting;

3. Not be located on an arterial street;

4. Not be located in the area of the visibility triangle at an intersection. (Ord. 16882 § 2 (part), 2008)

19.25.020 Subdivision identification signs.

A. Where a subdivider proposes an identification sign within the subdivision, the following shall be required:

1. No more than two subdivision identification signs shall be permitted per subdivision entrance;

2. No portion of a subdivision identification sign shall be within a public right-of-way or public easement, except where authorized by special privilege license granted by city council;

3. The maximum area of subdivision identification signs shall be forty-eight square feet per subdivision entrance. The subdivision identification sign shall only include the name, logo or other identification of the subdivision or project;

4. The location of subdivision identification signs shall be subject to the approval of the city manager, or designee and shall be shown on the subdivision improvement plans;

5. The subdivider shall secure required city permits for the placement of the subdivision identification sign(s) on the property;

6. Where a subdivision identification sign is proposed, restrictive covenants shall be submitted with the subdivision which provide for the formation of a neighborhood association which shall provide for the perpetual maintenance of the sign. As an alternative, if an improvement district such as a public improvement district has been created to maintain public improvements and amenities, it can also maintain the sign. (Ord. 16882 § 2 (part), 2008)

19.25.030 Community facilities.

Where the location of a community facility, as defined, within a subdivision is needed based on The Plan for El Paso, and is recommended by the city plan commission, the subdivider shall coordinate with the city to locate and assist in the acquisition of land for the facility, in accordance with Chapter 19.46 on proportionality. (Ord. 16882 § 2 (part), 2008)

Chapter 19.26

ALTERNATIVE SUBDIVISION/SMART CODE DESIGNS

Sections:

19.26.010 Purpose.

19.26.020 Infill development.

19.26.030 Reduced roadway and lot frontage requirements.

19.26.040 Alternative subdivision improvement design.

19.26.050 Form based/smart code subdivisions.

19.26.060 Approval.

19.26.010 Purpose.

Purpose. It is the purpose of this title to provide for the consideration of alternative subdivision designs, smart growth and form based subdivisions, infill developments, mixed-use districts and alternative improvement designs and engineering which differ from the conventional design standards as outlined within this article of this title, but which are based upon sound engineering, planning and urban design practice. Infill development provisions would encourage the development of smaller, isolated tracts of land in the inner city or the area surrounding it that have been passed over by development and have remained vacant for years, and may include platted or unplatted land. "Alternative subdivision improvements" means alternative designs for physical improvements such as streets, water and wastewater, as well as any other infrastructure element of a proposed development. Smart code subdivisions are those adopted in accordance with the Smart Code provisions of the City of El Paso. (Ord. 16882 § 2 (part), 2008)

(Ord. No. 17236, § 27, 11-10-2009)

19.26.020 Infill development.

A. Intent and Purpose. The following guidelines are designed to meet the intent and purpose of the infill sections, requirements and references in Title 20, the zoning ordinance to reinvigorate existing communities and neighborhoods and support new compact, single or mixed-use development. This chapter is intended to reduce barriers to infill development, and to provide incentives such the use of flag lots and private drives, reduced drainage standards on smaller parcels, reduced fees and participation in or reduced requirements for infrastructure.

B. Application. An application for an infill development procedure shall be submitted at the time of preliminary plat application. The infill development subdivision design will be reviewed under the provisions outlined in the zoning ordinance under the alternative subdivision design provisions for infill development, as well as in Chapter 19.03, Preliminary Plat, of this title, as amended and provisions outlined in this title. The infill subdivision improvement plans and applicable incentives must be submitted, requested, reviewed and approved prior to final plat approval of an infill development and recordation. All applications shall be submitted on a form supplied by the planning division with the required information as stated on the application form and meeting the administrative submission requirements available in the planning division.

C. Designated Areas. The provisions of this chapter shall apply to areas designated for infill development in Title 20, the zoning ordinance.

D. Zoning Districts and Related Single-Family Lot Sizes. The applicable zoning districts in which the infill development procedure may be used and the infill development standards that may be permitted for single-family uses through the use of the procedure shall be as allowed by the infill development provisions of the zoning ordinance.

E. Incentives. In addition to the incentive of smaller lots and higher density in accordance with the zoning ordinance, the following incentives are available in developments meeting the requirements of this chapter:

1. Reduced Fees. The city manager or designee shall waive the development fees associated

with the subdivision review and approval process for qualified projects. The El Paso Water Utility may waive one or more fees associated with water and wastewater service, including hookup fees, for qualified projects;

2. Replat Fees and Approval. While replatting laws of the State of Texas must be observed, replats with less than four lots may be administratively approved in accordance with this chapter without a public hearing and the fees may be waived as described above;

3. Infrastructure Cost Participation. The city council may choose to pay for additional participation in public infrastructure beyond what is required by this chapter for a qualified infill development. The determination by the city council shall be made prior to the approval of the final plat and may include but is not limited to:

a. Construction, repair or replacement of public streets, curbs and gutters or alleys,

b. Construction, repair or replacement of sidewalks, streetlighting or other pedestrian improvements,

c. Construction, repair or replacement of storm drainage facilities;

4. Water and Wastewater. The El Paso Public Water Utility may choose to pay for additional participation in public infrastructure by this title for a qualified infill development;

5. Stormwater and erosion control. Infill projects that create less than ten thousand square feet of new impervious surface are exempt from the stormwater requirements, excluding stormwater utility fees.

6. Park fees for residential infill development occurring within the area identified in Appendix 112 shall be reduced by the reduction identified in Appendix 112.

7. Park dedication or fees are reduced by 50 percent for a non-residential subdivision up to five acres in size that satisfies the location criteria below for infill development, but that has not been designated by special permit overlay as infill development. At least two of the following factors must be present:

a. the property is wholly or partially located within a designated tax increment financing district;

b. the property is wholly or partially located within a designated state or federal enterprise zone;

c. the property is wholly or partially located within an empowerment zone;

d. the property is wholly or partially located within a designated redevelopment area pursuant to Chapter 20.14 of Title 20;

e. the property is located within a designated historic district;

f. the property is within an older neighborhood of the city, which is defined as a legally recorded and developed subdivision for at least thirty years. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 17236, §§ 2, 27, 11-10-2009; Ord. No. 17396, § 20, 8-24-2010; Ord. No. 17576, § 2, 6-7-2011; Ord. No. 18191, § 1, 6-17-2014)

19.26.030 Reduced roadway and lot frontage requirements.

A. Flag Lots and Reduced Roadway and Lot Frontage Requirements. Public streets serving single-family residential lots may be replaced by private roadways (access lanes) twenty feet wide within a minimum thirty-foot easement used to serve up to eight lots.

B. Such roadways and access lanes shall be shown in an easement dedicated to the property owners and public agencies that is designated by a note on the recorded plat as a "perpetual reciprocal easement."

C. Such private access lane may be allowed with designation as an infill development or in other single-family residential zoning districts if the CPC finds:

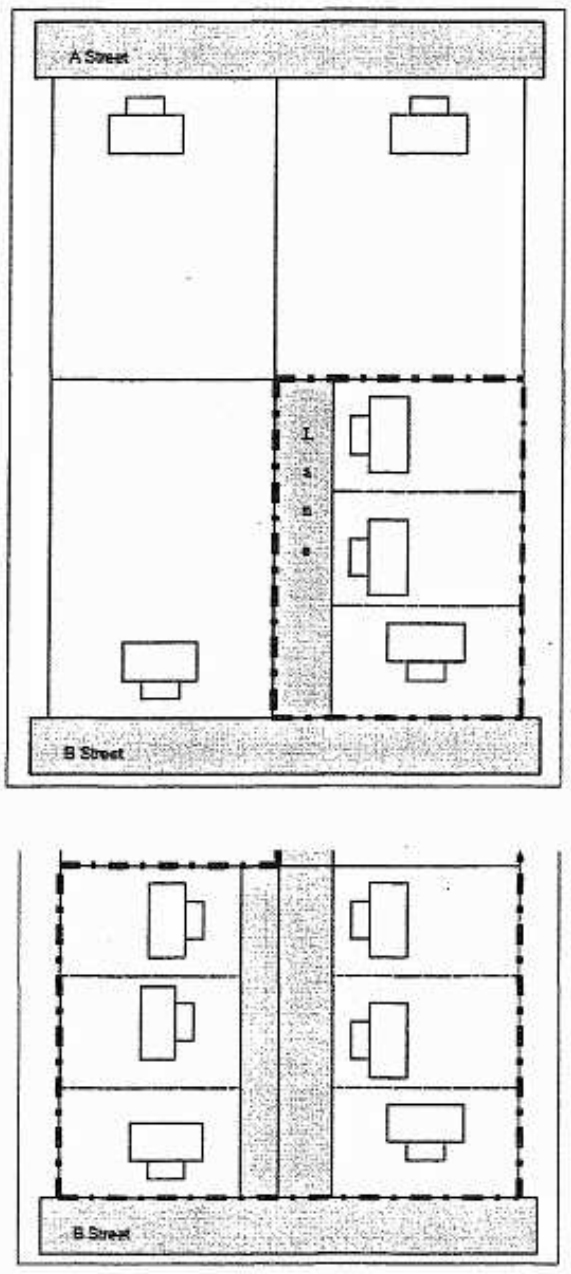
1. Physical conditions preclude development of the street, such conditions may include, but are not limited to, topography or likely impact to natural resource areas such as Arroyos, wetlands, ponds, streams, channels, rivers, lakes or upland

wildlife habitat area or are source on the National Wetland Inventory or under protection by state or federal law;

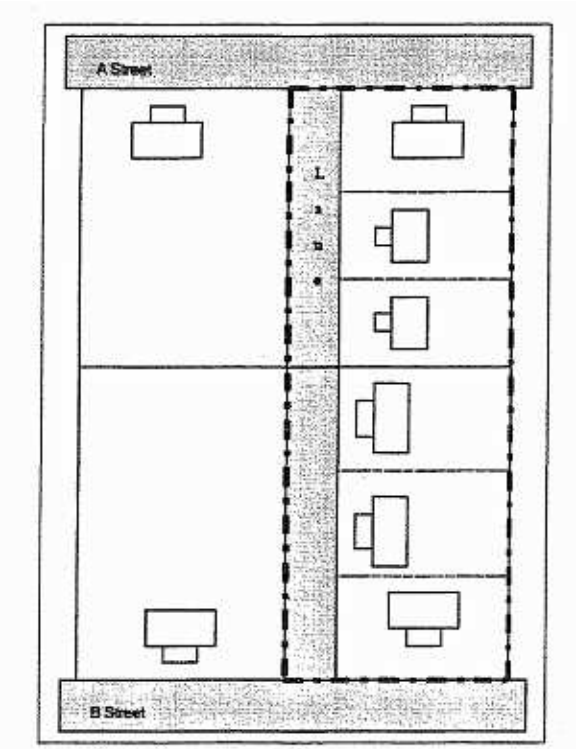
2. Buildings or other existing development on adjacent lands including previously subdivided but vacant lots or parcels physically preclude a public street now or in the future considering the potential for redevelopment;

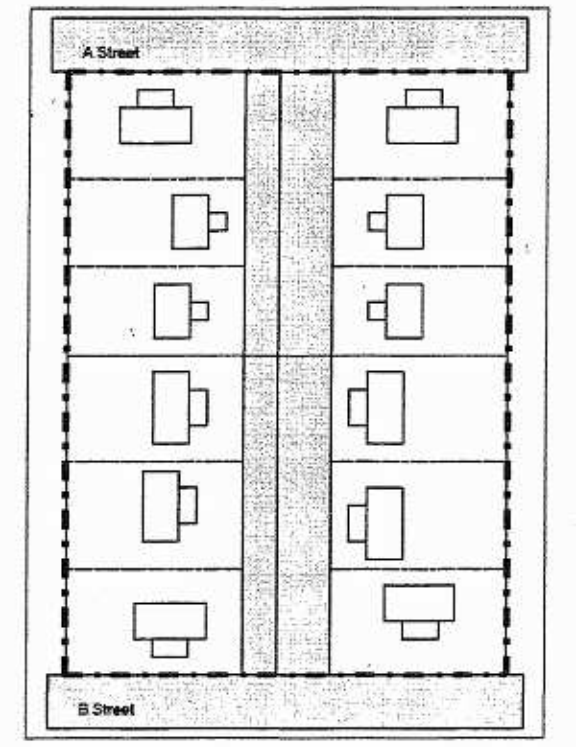
3. If the applicant can demonstrate that a future street cannot be made to serve the property, then the application for plat approval shall be processed subject to subdivision standards;

4. For lots or parcels that do not extend from one street to another, the following diagram indicates how up to four lots may be platted fronting on a twenty foot wide access lane that extends up to two hundred feet in depth. Lanes in excess of two hundred feet must be twenty-four feet wide with an additional four feet of easement and be designated as a fire lane;

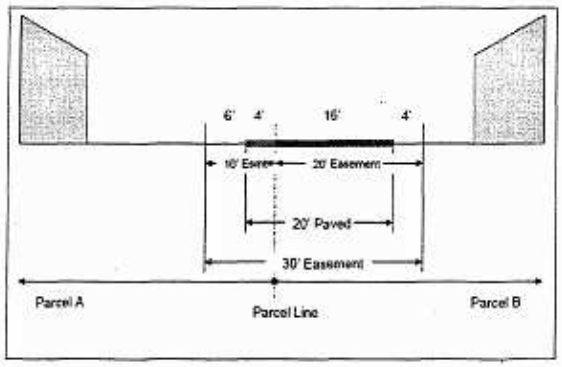


5. For lots or parcels that do extend from one street to another, the following diagram indicates how up to eight lots may be platted fronting on a twenty foot wide access lane that extends up to four hundred feet in depth;

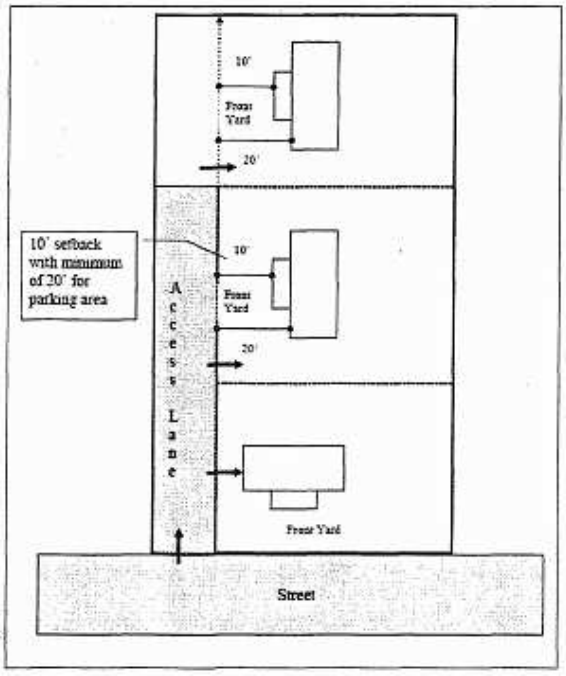




6. The following diagram indicates how two separately owned adjoining parcels or lots may provide or be sequenced to provide thirty feet of easement and twenty feet of access lane;



7. The following diagram indicates how lots will front on the access lane and where the front yard and parking setbacks are measured from. (Numbers are for example purposes only. The zoning ordinance has the actual dimension requirements.)



(Ord. 16882 § 2 (part), 2008)

19.26.040 Alternative subdivision improvement design.

A. Intent. This chapter contains the regulations for the alternative subdivision improvement design procedure. These regulations are supplemented and qualified by additional general regulations appearing elsewhere in this title, which are incorporated as part of this chapter by reference. It is in the intent of the alternative subdivision improvement design procedure to allow one or more alternative improvement designs to those required in this title and the SDM to be utilized in a comprehensive manner throughout a proposed development, provided the improvements meet the intent and have the same or higher level of service or adequacy of the original required improvement. It is not the intent of the alternative subdivision improvement design procedure to allow an inferior improvement to the original one required by this title for the purpose of reducing costs.

B. Application. An application for the alternative subdivision improvement design procedure shall be submitted at the time of preliminary plat application, along with a subdivision improvement plan showing the proposed changes. Subdivision improvement plans in accordance with this title with the proposed alternative subdivision improvement design clearly designated shall be provided in order for the designated staff to make an evaluation of the proposal. Engineering or other studies should be provided to establish that the proposal meets the intent of this title and provides the same level or greater of protection, service or adequacy of the original requirement. The alternative subdivision improvement design will be reviewed under the provisions outlined in Chapter 19.03, Preliminary Plats, of Section 19.08.010, subdivision improvement plans, as amended, as well as provisions outlined in this chapter. All applications shall be submitted on a form supplied by the planning official with the required information as stated on the application form and meeting the administrative submission requirements available in the office of the planning official.

C. Based on Engineering. Decisions regarding the design of various physical improvements in a subdivision should be based on engineering or other studies. Thus, while this code provides standards for design, the regulations are not a substitute for sound engineering judgment. Therefore, a licensed engineer may submit alternative designs to be reviewed and considered by the city manager or designee.

D. Relationship to Standards in Chapter 19.15, Roadways. If the proposed alternative design is approved by the city manager or designee, then the applicable provisions of Chapter 19.15 shall be deemed to have been met. If the proposed alternative design standards are not approved by the city manager or designee, then the standards contained within Chapter 19.15 shall apply.

E. Relationship to All Other Improvement Standards. If the proposed alternative subdivision improvement design is determined to meet or exceed the standard for such improvement contained in this title and the SDM and approved by the CPC upon recommendation of city manager or designee, then the applicable provisions of this title shall be deemed to have been met. If the proposed alternative design standards are determined not to be the equivalent of the standard contained in this title and not approved by the city manager or designee, then the standards contained within this chapter shall apply. (Ord. 16882 § 2 (part), 2008)

(Ord. No. 17236, § 2, 11-10-2009; Ord. No. 17396, § 21, 8-24-2010; Ord. No. 17811, § 7, 6-5-2012, eff. 6-11-2012; Ord. No. 19327, § 42, 4-26-2022)

19.26.050 Form based/smart code subdivisions.

A. Standards. In cases where the applicant for subdivision approval is currently zoned in a smart code district as set forth in Title 21 of the city code, the applicant must comply with the standards set forth in Section 19.26.050, the Street Design Manual (SDM) of Title 19 and the standards set forth in Title 21, smart code. Where the standards conflict, the standards set forth in the smart code provisions prevail. Applicants whose

property is zoned in a smart code district are required to utilize the following standards contained in Title 21, Smart Code, Tables:

Table 3A — Vehicular Lane Dimensions; 3B—Vehicular Lane and Parking Assemblies

Table 4A — Public Frontages—General

Table 4C — Thoroughfare Assemblies

Table 17 — Turning Radius

Table 13 — Civic Spaces

B. Applicability of Form Based and Smart Code Provision.

1. Subdivision with Smart Code Zoning In Place. In cases where the applicant for subdivision approval is currently zoned in a smart code district as set forth in Title 21 of the city code, then where such provisions conflict with provisions contained in Section 19.26.050 and the Street Design Manual, the smart code provisions shall prevail, otherwise, the standards set forth in Section 19.26.050 and the Street Design Manual shall apply.

2. Properties Seeking Zoning Approval. In unplatted properties in which the applicant is seeking zoning approval for districts set forth in the form based/smart code section of Title 21 of the city code, and is proposing to use form based code/smart code standards in their plat and subdivision improvement drawings, then the applicant shall utilize the form based code/smart code standards set forth in Title 21, Smart Code, Section 19.26.010, and the Street Design Manual (SDM). (Ord. 16882 § 2(part), 2008)
(Ord. No. 17236, § 14, 11-10-2009; Ord. No. 19327, § 43, 4-26-2022)

19.26.060 Approval.

A. Infill Development. The city plan commission, as part of the preliminary plat approval, may approve, approve with conditions or deny the proposed infill development, provided it meets all the requirements in this chapter. Since the applicant is assured of approval of a preliminary plat that meets the requirements of this title, the CPC is not obligated to approve an infill development. It is the applicant's obligation to document to the CPC that the infill development meets the intent of this chapter and is a better quality development than would otherwise be developed. Replats of existing lots shall meet the requirements of Texas State Statute. If the proposed infill development plat is approved, or approved with conditions by the city plan commission, upon recommendation by the manager or designee, then the applicable provisions of this title shall be deemed to have been met. If the proposed infill development is not approved by the city plan commission, then the standards contained within this title shall apply.

B. Alternative Subdivision Improvement Design.

1. Alternative subdivision improvement designs that either alter the road standards and applicable provisions in Chapter 19.15 or the various other physical improvement standards contained in this title or in the SDM, may be approved by the CPC upon recommendation of the city manager or designee as part of the preliminary and/or final plat approval, if the CPC and the city manager or designee agree with the engineering studies provided as part of the submission showing that the proposal meets the intent of the ordinance codified in this title and provides the same level or greater of protection, service or adequacy of the original requirement.

2. Since there are already acceptable standards for subdivision improvements and the applicant is assured of approval of a preliminary plat that meets the requirements of this title, the CPC is not obligated to approve an alternative subdivision improvement design. It is the applicant's obligation to document to the CPC that the alternative subdivision improvement design meets the intent of this chapter and is a better quality development than would otherwise be developed.

3. The city plan commission may approve alternative subdivision improvement designs as part of a land study if the land study contains sufficient detail and information, to include any necessary engineering studies, showing that the proposal meets the intent of this title and provides the same level or greater of protection, service or adequacy of the original requirement.

4. If the proposed alternative subdivision improvement design is approved, or approved with conditions by the city plan commission, upon recommendation by the manager or designee, then the applicable provisions of this title shall be deemed to have been met. If the proposed alternative subdivision improvement design is not approved by the city plan commission, then the standards contained within this title shall apply.

C. Form Based or Smart Code Subdivisions. The city plan commission, as part of the preliminary plat approval, may approve, approve with conditions or deny the proposed form based or smart code subdivision. If the form based or smart codes subdivision meets the requirements of El Paso code of ordinances for form based or smart codes, this title and the Street Design Manual, then the CPC shall approve the plat.

D. Misrepresentation of facts of any kind shall result in the denial or revocation of the approval or conditional approval of the preliminary plat and/or final plat. (Ord. 16882 § 2 (part), 2008) (Ord. No. 17236, § 27, 11-10-2009; Ord. No. 19327, § 44, 4-26-2022)

Chapter 19.27

HILLSIDE DEVELOPMENT AREA

Sections:

19.27.010 Establishment of Hillside Development Area.

19.27.020 Subdivision application.

19.27.010 Establishment of Hillside Development Area.

The Hillside Development Area is established and consists of the area bound by the Mountain Development Area (MDA) and the Texas-New Mexico State boundary line, Interstate Highway 10, Paisano Drive, Executive Center Boulevard, Mesa Street, Schuster Avenue, Murchison Drive, Arizona Avenue, Alabama Street, Magnetic Drive, Hondo Pass Avenue, U.S. Highway 54 and Martin Luther King, Jr. Boulevard and as more particularly described in the boundary map at Appendix 112.
(Ord. No. 17349, § 2, 7-13-2010)

19.27.020 Subdivision application.

A filed subdivision application or any portion thereof, for property within the Hillside Development Area shall follow the general procedural requirements for plat review and approval as provided in Chapter 19.37 of this title. The city manager, or designee, shall make a report of the staff's written comments and recommendations in writing to the city plan commission, or city manager, or designee where administrative approval is authorized, prior to any action on the subdivision application. However, prior to city plan commission action, all subdivision applications within the Hillside Development Area shall be presented to the open space advisory board for advice and comments, provided, however, that failure of the open space advisory board to provide comments to the city plan commission prior to the city plan commission meeting in which the plat will be considered, shall not prevent the city plan commission from taking action on the plat and shall not be a basis for denial of the plat if the plat conforms all other provisions of Title 19.
(Ord. No. 17349, § 2, 7-13-2010)

Article 3. Authority of Decision-Makers

Chapter 19.30

GENERAL PROVISIONS

Sections:

19.30.010 Source of authority.

19.30.020 Implied authority.

19.30.030 Effect of city approval.

19.30.040 Conflict in authority.

19.30.010 Source of authority.

Authority. Authority under this title shall be vested in and delegated to the officials and decision-makers designated in this title, under the city's Charter, the Constitution and laws of the State of Texas and the city code. This authority shall be deemed supplemental to any other authority lawfully conferred upon the officials and decision-makers. The omission of a citation in this title to any authority conferred upon the officials and decision-makers under the city's Charter, the constitution or laws of the State of Texas, or the city code, or the failure to identify in this article authority conferred by other provisions of this title, shall not be construed as limiting the actions of such officials and decision-makers taken in accordance with and in reliance upon such authority. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 17236, § 27, 11-10-2009)

19.30.020 Implied authority.

Authority. City officials and decision-makers shall have all implied authority necessary to carry out the duties and responsibilities expressly delegated by this title to the extent the implied authority is not in conflict with the expressly delegated authority. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 17236, § 27, 11-10-2009)

19.30.030 Effect of city approval.

A. Effect of City Approval. The city's approval of applications, plans, designs, plats or any other documents requiring city approval under the standards and procedures of the subdivision code does not guarantee or assure that the development of the property will prevent, minimize, or mitigate harm to adjoining properties. The city's approval does not permit the violation of any city, state or federal law. A developer who undertakes development activities shall not rely on the city's approval of an application as ensuring that the development activities will not result in harm to adjoining properties. Additionally, the city's approval does not excuse or release the developer from compliance with all applicable city ordinances. The regulations contained in the subdivision code constitute an exercise of the city's governmental authority, and approval of an application shall not give rise to any liability on the part of the city or its officers, agents, and employees. It is the developer's responsibility to ensure that any applications, plans, designs, plats or any other documents required to be submitted under the standards and procedures of the subdivision code comply with all provisions of the city ordinances and state laws, whether herein specified or not.

B. No Waivers. Except as expressly provided for in this title, no official, board, commission of the city, or the city council, shall have authority to waive any requirement or standard for an application. Any attempted waiver of a requirement or standard for an application in contravention of this subsection shall be deemed null and void, and, upon discovery, shall be grounds for revocation of a permit or approval, or reconsideration of a legislative decision. (Ord. 16882 § 2 (part), 2008)

19.30.040 Conflict in authority.

A. Internal Inconsistency. Whenever one or more provisions of this title are in apparent conflict, the provisions shall be construed, if possible, so that effect is given to each. If the conflict is between a general provision and a specific provision, and the conflict is irreconcilable, the specific provision shall prevail as an exception to the general provision, unless the general provision is the later enactment and the manifest intent is that the general provision should prevail.

B. Incomplete Provisions. Whenever a specific standard or procedure of this title is incomplete when applied in isolation to an application or development activity, such standard shall be supplemented by any general or specific provision of this code, the city code, or the city Charter in order to give effect to the incomplete provision.
(Ord. 16882 § 2 (part), 2008)
(Ord. No. 17236, § 27, 11-10-2009)

Chapter 19.31

RESPONSIBLE OFFICIALS

Sections:

19.31.010 Responsible official designated.

19.31.020 Planning official.

19.31.030 Planning and inspections director.

19.31.040 Building official.

19.31.050 Parks director.

19.31.060 City manager or designee.

19.31.070 Stormwater administrator.

19.31.080 Floodplain administrator.

19.31.090 Other city officials.

19.31.010 Responsible official designated.

A. Responsible official. The responsible official shall be the planning official, who is assigned responsibility under this title for taking the following actions with regard to a particular type of application or relief petition authorized under this title unless otherwise specifically provided:

1. Accepting the application for submittal, filing and processing the application;

2. Reviewing and making recommendations concerning the application or petition;

3. Seeking advice of other city departments and coordinating any recommendations from such departments concerning the application or petition;

4. Initially deciding the application or petition, where so authorized;

5. Determining a request for exemption;

6. Preparing reports to and advising any board, commission or the city council that has responsibility for making recommendations on or deciding the application or petition;

7. Promulgating additional or modified policies, standards and administrative rules for adoption by the city council that apply to the application or petition;

8. Initiating enforcement actions concerning compliance with the standards applicable to the application or petition and the conditions imposed thereon; and

9. Taking all other actions necessary for administration of the provisions of this title with respect to the application or petition.

B. Specific duties. The specific duties of the responsible official shall include those authorized under the procedures applicable to all types of applications pursuant to this title, those authorized under the provisions governing procedures for deciding particular applications under Articles 3 and 4 of this title, and those authorized under relief procedures pursuant to Article 5 of this title.

C. Delegation. The responsible official may delegate the official's authority under this Code to subordinate officials, who shall thereupon be deemed the responsible official for purposes of carrying out the delegated duties. (Ord. 16882 § 2 (part), 2008)

(Ord. No. 17236, §§ 2, 27, 11-10-2009; Ord. No. 17396, § 22, 8-24-2010)

19.31.020 Planning official.

A. Responsible official. The planning official or other designee of the city manager is the responsible official for the following types of applications and relief petitions:

1. Petition for amending the comprehensive plan;

2. Application for a land study, preliminary plat, final plat, minor plat and replat;

3. Appeal of a decision on any application for which the planning official is the responsible official;

4. Alternative subdivision designs, exception or waiver petition for any application for which the planning official is the responsible official;

5. Vested rights petition for any decision where the planning official is the responsible official for the application for which the vested rights petition is submitted.

B. Initial decision-maker. The planning official or other designee of city manager is the initial

decision-maker for the following types of applications and relief petitions, subject to appeal as provided in this title:

1. Application for a minor plat or replat of four or less lots as authorized by state statute;

2. Application for an amending plat;

3. Vested rights petition for any decision for which the planning official or city manager designee is the initial decision-maker.

4. Any appeal for which a subordinate city staff person was the initial decision-maker, subject to further appeal as provided for in this title. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 17236, § 27, 11-10-2009; Ord. No. 17396, § 23, 8-24-2010)

19.31.030 Planning and inspections director.

A. Responsible Official. The director of the planning and inspections department or his designee ("director") is the responsible official for the following types of applications and relief petitions (except as provided):

1. Application for approval of construction and engineering plans, and all related construction management tasks, including without limitation, approval of contracts for public improvements;

2. Application for a site preparation permit;

3. Appeal of a decision on any application for which the director is the responsible official;

4. Alternative subdivision designs, exception or waiver petition for any application for which the director is the responsible official;

5. Vested rights petition for any decision where the director is the responsible official for the application for which the vested rights petition is submitted; and

6. Petition for relief from a dedication or construction requirement in accordance with Chapter 19.46 and other provisions of this title.

B. Initial Decision-maker. The director is the initial decision-maker for the following types of applications and relief petitions, subject to appeal as provided in this title:

1. Application for approval of construction plans, and all related construction management tasks, including without limitation approval of a contract for public improvements;

2. Application for a site preparation permit; and

3. Vested rights petition for any decision for which the director is the initial decision-maker.
(Ord. No. 17811, § 8, 6-5-2012, eff. 6-11-2012; Ord. No. 19243, § 17, 10-12-2021)

Editor's note—Ord. No. 17811, § 8, adopted June 5, 2012, effective June 11, 2012, amended 19.31.030 in its entirety to read as herein set out. Former 19.31.030 pertained to city engineer, and derived from Ord. 16882 § 2 (part), 2008; Ord. No. 17396, § 24, 8-24-2010.

Editor's note—Ord. No. 19243, § 17, adopted Oct. 12, 2021, amended the title of § 19.31.030 to read as herein set out. The former § 19.31.030 title pertained to City development director.

19.31.040 Building official.

Responsible Official and Initial Decision-Maker. The building official is the responsible official for and shall initially decide the following types of applications:

A. Application for a building permit; and

B. Application for a certificate of occupancy.
(Ord. No. 17236, § 15, 11-10-2009)

Editor's note—Ord. No. 17236, § 15, adopted November 10, 2009, amended § 19.31.040 in its entirety to read as herein set out. Former § 19.31.040, pertained to deputy director-building permits and inspections, and derived from Ord. 16882 § 2(part), 2008.

19.31.050 Parks director.

Responsible Official and Initial Decision-Maker. The parks director is the responsible official for and shall initially decide the following types of applications:

A. Accepting fees in lieu of parkland;

B. Acceptable parkland dedications;

C. All other decisions authorized in Chapter 19.20, Parks and Open Space, to be decided by the parks director. (Ord. 16882 § 2 (part), 2008)

19.31.060 City manager or designee.

Initial decision-maker. The city manager or his designee is the initial decision-maker for the following:

A. Appeal of a decision on any application for which a staff member is the responsible official;

B. Alternative subdivision designs, exception or waiver petition for any application for which the a staff member is the responsible official;

C. Vested rights petition for any decision where a staff member is the responsible official for the application for which the vested rights petition is submitted; and

D. Petition for relief from a dedication or construction requirement in accordance with chapter 19.46 and other provisions of this title.

(Ord. No. 17236, §§ 7, 16, 11-10-2009; Ord. No. 17396, § 25, 8-24-2010)

19.31.070 Stormwater administrator.

Responsible Official and Initial Decision-Maker. The stormwater administrator shall be the person designated by the city manager to be the responsible official and initial decision-maker for all stormwater management under Chapter 15.20 of this code. (Ord. 16921 § 1 (part), 2008: Ord. 16882 § 2 (part), 2008)

19.31.080 Floodplain administrator.

Responsible Official and Initial Decision-Maker. The city manager shall designate a Texas licensed professional engineer as the floodplain administrator to administer and implement the provisions of Chapter 18.60 and other appropriate sections of 44 CFR (National Flood Insurance Program regulations) pertaining to floodplain management and shall be the person designated by the city manager to be the responsible official and initial decision-maker for applications pertaining to drainage plans and other drainage decisions as may be required in Title 18 Building and Construction and Chapter 19.19 Stormwater Management Requirements. (Ord. 16921 § 1 (part), 2008: Ord. 16882 § 2 (part), 2008)

19.31.090 Other city officials.

The city manager, city attorney and any other official delegated or otherwise who has responsibilities under the requirements of this title are authorized to take all actions necessary to carry out their responsibilities in accordance with the requirements and limitations prescribed herein. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 17236, § 27, 11-10-2009)

Chapter 19.32

CITY PLAN COMMISSION

Sections:

19.32.010 Reference to city charter.

19.32.010 Reference to city charter.

Reference. The city plan commission shall have the powers and duties as provided for in Chapter 2.08 of this City Code, the Charter of the City of El Paso, Texas and as authorized by Chapters 211, 212 and 245 of the Texas Local Government Code.
(Ord. 16882 § 2 (part), 2008)
(Ord. No. 17236, § 6, 11-10-2009)

Chapter 19.33

CITY COUNCIL

Sections:

19.33.010 Authority for amendments to this title.

19.33.020 Authority for deciding appeals and relief petitions.

19.33.010. Authority for amendments to this title.

The city council shall have all powers and authority derived from the state constitution and laws, the city charter, and as specifically described in this section. In addition, they may from time to time amend, supplement, or change by ordinance the text of this title, on the city's initiative or upon a request for a text amendment, following review and recommendation by the city plan commission. (Ord. 16882 § 2(part), 2008)
(Ord. No. 17236, § 17, 11-10-2009)

19.33.020 Authority for deciding appeals and relief petitions.

A. Appellate Authority. The city council shall finally decide appeals on the following applications and relief petitions:

1. A vested rights petition submitted in conjunction with an application for which the city council is the final decision-maker;

2. A vested rights petition that has been previously denied by a city official, city board/commission or the El Paso Water Utility.

B. Petitions for Relief. The city council shall finally decide the following petitions for relief:

1. Petition for relief from a dedication or construction requirement in accordance with Chapter 19.10 and other provisions of this title, where such waiver or exception shall obligate the city to a future expense to either acquire such dedication or construct an improvement. (Ord. 16882 § 2 (part), 2008)

Chapter 19.34

DEVELOPMENT COORDINATING COMMITTEE (DCC)

Sections:

19.34.010 Structure of the development coordinating committee.

19.34.010 Structure of the development coordinating committee.

General. The city manager or his designee is authorized to establish whatever staff review committees or procedures they deem necessary to review development proposals, applications and plats under this title, to make necessary recommendations to the city plan commission, to ensure that certain applications are in compliance with this title and other codes of the city, and to coordinate preliminary examination of such applications to ensure that all city departmental requirements, established by resolution or ordinance, have been met without conflict. (Ord. 16882 § 2 (part), 2008) (Ord. No. 17236, § 8, 11-10-2009)

Article 4. Specific Application and Processing Requirements

Chapter 19.37

APPLICATION PROCESSING

Sections:

19.37.010 Initiation of application.

19.37.020 Application completeness and expiration.

19.37.030 Reserved.

19.37.040 Official application date.

19.37.050 Pre-application conference and vested rights waiver.

19.37.060 Application contents.

19.37.070 Application fees.

19.37.080 Modification of applications.

19.37.090 Action by responsible official.

19.37.100 Exemption determination.

19.37.110 Action by the city plan commission.

19.37.120 Decision.

19.37.130 Conditions.

19.37.140 Certification regarding compliance with plat requirements.

19.37.010 Initiation of application.

Initiation by Owner. An application for plat approval or a development permit may be initiated only by an owner of an interest in the land subject to the application, or the owner's designated agent. The application shall contain an affidavit of ownership to be signed by the owner of interest. If the applicant is a designated agent, the application shall include a notarized statement from the property owner authorizing the agent to file the application on the owner's behalf. (Ord. 16882 § 2 (part), 2008)

19.37.020 Application completeness and expiration.

A. Applicability. The following procedures shall apply to any application that is required by the city and is submitted in accordance with this title.

B. Determination of Completeness. Every required application shall be subject to a determination of completeness by the responsible official for processing the application.

1. No required application shall be accepted by the responsible official for processing unless it is accompanied by all documents required by and prepared in accordance with the requirements of this title.

2. A determination of completeness shall not constitute a determination of compliance with the substantive requirements of this title.

3. A determination of completeness shall be made by the responsible official in writing to the applicant no later than the fifth business day, unless otherwise specified, after the date that the required application is submitted to the responsible official.

a. The applicant shall be notified within five business days, unless otherwise specified, of the determination of completeness.

b. If the required application is determined to be complete, the application shall be determined to be submitted as of the date of the submission and processed as prescribed by this title.

c. If the required application is determined to be incomplete, the notification shall specify the documents or other information needed to complete the application and shall state the date the application will expire (see subsection (B)(3)(d) below) if the documents or other information are not provided by the applicant or their consultants.

d. A letter of notification of incompleteness shall be given to the applicant within five business days of receipt of initial submittal, and shall include a notice that the application must be completed within forty-five days of the date of the letter.

e. If no letter of notification of incompleteness is given to the applicant within five business days of receipt of initial submittal, the application shall be determined to be submitted as of the date of the submission and processed as prescribed by this title.

C. Resubmittal after Notification of Incompleteness. If the required application is resubmitted after a notification of incompleteness within the time allotted in subsection (B)(3)(d), the application shall be processed upon receipt of the resubmittal. No additional determination of completeness shall be made thereafter. However, to the extent that the information or documents submitted is not sufficient to enable the decision-maker to apply the criteria for approval, the application may be denied on such grounds.

D. Expiration of Application.

1. An application shall expire on the forty-fifth day after the date the application is submitted if:

a. The applicant fails to provide documents or other information necessary to comply with the city's requirements relating to the required application;

b. The city has provided to the applicant, not later than the fifth business day after the date the application is submitted, unless otherwise specified, written notice that specifies the necessary documents or other information, and the date the application will expire if the documents or other information is not provided; and

c. The applicant fails to provide the specified documents or other information within the time provided in the notification.

2. If the required application is not completed by the forty-fifth day after the application is submitted to the responsible official, the required application will be deemed to have expired and it will be returned to the applicant together with any accompanying information. (Ord. 16882 § 2 (part), 2008)

19.37.030 Reserved. (Ord. 16882 § 2 (part), 2008)

19.37.040 Official application date.

The time period established by state law or this title for a decision approving or denying a plat application shall commence on the date a complete application including the filing fee is accepted by the city. The official application date is the date an application is determined to be complete by the responsible official in the manner prescribed by Section 19.37.020. (Ord. 16882 § 2 (part), 2008)

19.37.050 Pre-application conference and vested rights waiver.

A. Request, Optional. Prior to the official filing of an application, the applicant(s) may request a pre-application conference with the responsible official in order to become familiar with the city's regulations and the processes.

B. Vested Rights Waiver, Required.

1. No pre-application conference shall commence or be held unless and until the property owner, or applicant as an authorized agent of the property owner, signs a waiver stating that no vested rights shall accrue from any discussion that occurs at the conference.

2. If the property owner does not sign such waiver, no such conference shall be held, and the property owner or his representatives may proceed with his application submittal as he so chooses.

3. A copy of the vested rights waiver form shall be available in the office of the responsible official. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 17236, §§ 7, 8, 11-10-2009)

19.37.060 Application contents.

A. Application Forms Generally. The city is authorized to prepare application forms that include information requirements, checklists, drawing sizes, applicant contact information, and any other relevant information, which shall be available in the SDM.

B. Information for Subdivision Applications. All subdivision applications shall contain the following information:

1. Identification of property owner and authorized agent, if any;

2. Description of the property and the nature of the development that is the subject of the application;

3. Identification of all zoning classifications (inside the city only) or development agreements for the property;

4. Identification of all pending legislative applications for the property;

5. Identification of decisions on all quasi-judicial or administrative applications for the property that remain in effect;

6. Identification of all accompanying applications;

7. Identification of all pending or accompanying requests for relief;

8. Demonstration of compliance with prior approved permits on the subject property;

9. All requests for alternative subdivision design approval.

C. All application forms are available in the office of the planning official and on the city's website.
(Ord. 16882 § 2 (part), 2008; Ord. No. 17236, § 5, 11-10-2009; Ord. No. 17396, § 26, 8-24-2010; Ord. No. 19243, § 18, 10-12-2021; Ord. No. 19327, § 45, 4-26-2022)

19.37.070. Application fees.

A. Every application shall be accompanied by the prescribed fees in the amounts established and set forth in the annual budget resolution of the city or other appropriate fee schedule prepared and adopted by the city council. The prescribed fees shall not be refundable and shall be submitted no later than the date an application is determined to be complete. The fee schedule may be amended from time to time by resolution of the city council.

B. Reserved.
(Ord. 16882 § 2(part), 2008; Ord. No. 17236, § 18, 11-10-2009; Ord. No. 19243, § 19, 10-12-2021)

19.37.080 Modification of applications.

The applicant may modify any complete application following its filing and prior to the expiration of the period during which the city is required to act on the application.

A. If the modification is for revisions requested by the city, and the modification is received at least five business days prior to the time scheduled for decision on the application, the application shall be decided within the period for decision prescribed by this title.

B. In all other instances (e.g., when the applicant chooses to submit a revised application on his own accord), submittal of a modified application shall constitute a new application and any action extend the time for deciding the application for a period equal to the time specified in this title, commencing on the date the modified application is officially submitted. Provided, however, if a waiver of the time for decision is first required (the terms of the approved waiver shall govern the period within which the city must act on the application. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 17236, § 27, 11-10-2009)

19.37.090 Action by responsible official.

A. Circulate and Compile Comments. Following the determination that an application is complete (Section 19.37.020), the responsible official shall circulate the application to all other administrative officials and departments whose review is required for a decision on the application and shall compile the comments and recommendations of the officials.

B. Decision Rendered, If Applicable. The responsible official shall render a decision in the time prescribed for the applicable application, if the official is the decision-maker for the application.

C. Forward Application and Provide Notification. In cases where the responsible official is not the decision-maker, the responsible official shall forward the application for review to any advisory board/commission and the final decision-maker, and shall prepare a report to such board or

commission, or to the city council, as the case may be, including the compilation of any comments and recommendations by other administrative officials. The responsible official also shall prepare required notices and schedule the application for decision within the time and in the manner required by this title. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 17236, § 27, 11-10-2009)

19.37.100 Exemption determination.

A. For any application for a development permit for which exemptions are listed, an exemption from the requirement to apply for such permit or approval shall be determined in the following manner:

1. The application for exemption must be submitted on a form supplied by the responsible official, must be accompanied by the review fee set by the city council, and must include all of the following information:

a. Name, address, and telephone number of the property owner and the applicant;

b. A brief description of the activity or development for which exemption is sought;

c. A scale drawing depicting the boundaries of the site, the location of existing improvements on the site, and the location of the proposed development activities on the site;

d. Information establishing the basis for the exemption.

2. The responsible official shall notify the applicant of the decision. If the responsible official denies the application for exemption, the official shall require that an application for the development permit or approval be prepared in accordance with this code.

B. An exemption is a separate and distinct consideration that is differentiated from an alternative subdivision design plan, exception and/or a waiver or application.

C. The following sections within this title contain exemptions:

1. Section 19.01.030 — Exemptions;

2. Chapter 19.20 — Parkland Dedication, Exemptions;

3. Other chapters within this title contain exemptions and the criteria for approval. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 17236, § 27, 11-10-2009)

19.37.110 Action by the city plan commission.
(Ord. 16882 § 2 (part), 2008)

19.37.120 Decision.

The decision-maker for the application shall approve, approve with conditions or deny the application within the time prescribed by this title and applicable state laws regarding same. (Ord. 16882 § 2 (part), 2008)

19.37.130 Conditions.

A. The initial or final decision-maker may attach such conditions to the approval of an application as are reasonably necessary to assure compliance with applicable requirements of this title. (Ord. 16882 § 2 (part), 2008)

19.37.140 Certification regarding compliance with plat requirements.

A. Pursuant to this chapter, the certificate of compliance shall be issued by the deputy director-planning or city manager designee within five working days of the recording of the subdivision with the county clerk. The certificate of compliance shall be in the form approved and on file in the office of the planning official.

B. Platting Determination Application. On the application of an owner of land, a purchaser of real property under a contract for deed, executory contract, or other executory conveyance or an entity that provides utility service, the deputy

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director-planning shall make the following determinations regarding the owner's land or the land in which the entity or governing body is interested that is located within the corporate limits or extraterritorial jurisdiction: whether a subdivision is required under this title for the land; and if a plat is required, whether it has been prepared and whether it has been reviewed and approved by the city plan commission or deputy director-planning or city manager designee, as applicable.

C. Upon the final approval of a subdivision by the city plan commission, or the approval of a minor plat by the deputy director-planning or city manager designee, and the recording of the subdivision with the county clerk, the deputy director-planning or city manager designee shall endorse the approved final subdivision with a certificate of compliance stating that the subdivision has been reviewed and approved by the city.

D. In cases where the city plan commission or other final approving authority fails to act on a final subdivision application within the thirty-day time period as provided in this title, the deputy director-planning or city manager designee upon a written request by the subdivider, and after the recording of the subdivision with the county clerk, shall issue a certificate of compliance stating the date the subdivision was submitted and that the city plan commission failed to act on the final subdivision application within the specified time period.

E. A platting determination application shall be on a form available in the office of the planning official, and shall identify the land that is the subject of the request. All applications for a platting determination shall be made in person in the office of the deputy director-planning or city manager designee.

F. If the deputy director-planning or city manager designee determines that a subdivision is not required, a written certification of that determination shall be issued to the requesting party.

G. If the deputy director-planning or city manager designee determines that a subdivision is required and that the subdivision has been prepared and has been reviewed and approved by the city plan commission, or deputy director-planning or city manager designee where administrative approval is authorized, the deputy director-planning or city manager designee shall issue to the requesting party a written certification of that determination. Where the deputy director-planning or city manager designee determines that a subdivision is required and that a subdivision has not been prepared, reviewed and approved, a written certification of that determination shall be made.

H. The deputy director-planning or city manager designee shall make a determination within five working days after the date the application is received and shall issue the platting determination certificate, whether approval or disapproval, within five working days after the date the determination is made. A platting determination certificate shall be in the form approved and available in the office of the planning official.

I. Fee. A platting determination application shall be accompanied with the appropriate processing fee as established by the city council. A fee shall also required for requests for copies of certificates of compliance which have already been issued on a property. No fee shall be assessed on a certificate of compliance which has been issued to a subdivider as part of the recording of a subdivision plat as provided for in this chapter. (Ord. 16882 § 2 (part), 2008)

(Ord. No. 17236, § 2, 11-10-2009; Ord. No. 17396, § 27, 8-24-2010)

Chapter 19.38

NOTICE REQUIREMENTS

Sections:

19.38.010 Published notice for replats.

19.38.020 Personal notice for replats.

19.38.030 Reserved.

19.38.040 Notification following decision.

19.38.050 Notification of appeal or revocation.

19.38.010 Published notice for replats.

Whenever published notice of a public hearing for a replat approval before the city plan commission is required under state law, or this title, the responsible official shall cause notice to be published in a newspaper of general circulation in the city before the fifteenth calendar day before the date set for the required hearing. The notice shall set forth the date, time, place and purpose of the hearing, and identification of the subject property, where the decision concerns an individual tract or parcel of land. (Ord. 16882 § 2 (part), 2008)

19.38.020 Personal notice for replats.

A. Whenever personal notice of a replat public hearing is required by state law or this title before the City Plan Commission, the responsible official shall cause notice to be sent by regular mail before the fifteenth calendar day before the hearing date to the following:

1. Each owner of real property located within the original subdivision within two hundred feet of the exterior boundary of the property in question;

2. The applicant and/or property owner; and

3. If the matter to be considered is an appeal, to the appellant.

B. The notice shall set forth the name of the applicant, the time, place and purpose of the hearing, identification of the subject property, and if the matter to be considered is an appeal, the name of the appellant.

1. Notice shall be sent to each owner indicated on the most recently approved municipal tax roll for land inside the city limits, and, when required by state law, on the most recently approved El Paso County tax roll for land in the extraterritorial jurisdiction. For recently annexed land that is not included on the most recently approved municipal or El Paso County tax roll, notice may be given by publication.

2. Notice shall be considered served by depositing the notice, properly addressed and first class postage prepaid, in the United States mail. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 18971, § 14, 9-3-2019)

19.38.030 Reserved.

19.38.030 Reserved. (Ord. 16882 § 2 (part), 2008)

19.38.040 Notification following decision.

Within five business days of the date by a responsible official's or the city plan commission determination on an application, written notification of the action shall be mailed to the applicant, stating the action taken. Record of the CPC notification shall be filed with the executive secretary of the city plan commission on the date of notification. (Ord. 16882 § 2 (part), 2008)

19.38.050 Notification of appeal or revocation.

Whenever an appeal is taken from a final decision on a plat or a replat application following a public hearing, or whenever the city is to consider revocation of an approval of a plat, development permit or replat which was obtained following a public hearing, personal notice of the appeal or revocation proceeding shall be provided in the manner prescribed by Section 19.38.020. (Ord. 16882 § 2 (part), 2008)

Chapter 19.39

PUBLIC HEARINGS

Sections:

19.39.010 Setting of the hearing.

19.39.020 Conduct of hearing.

19.39.030 Record of proceedings.

19.39.040 Continuance of proceedings.

19.39.010 Setting of the hearing.

When the responsible official determines that an application is complete and that a public hearing is required by this title, the official shall schedule a public hearing with the city plan commission, select a place and a time certain for the hearing, and shall cause notice of such hearing to be prepared and made in accordance with this article. The time set for the hearing shall conform to the time periods required by this article. (Ord. 16882 § 2 (part), 2008)

19.39.020 Conduct of hearing.

Any person may appear at the public hearing and submit evidence, either individually or as a representative of an organization. Each person who appears at a public hearing shall state his name, address, and if appearing on behalf of an organization, state the name and mailing address of the organization for the record. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 17236, § 8, 11-10-2009)

19.39.030 Record of proceedings.

The body conducting any required hearing under this title shall record the proceedings by any appropriate means. (Ord. 16882 § 2 (part), 2008)

19.39.040 Continuance of proceedings.

The body conducting any required hearing under this title may, on its own motion or at the request of any person, for good cause, continue the hearing to a reasonable fixed date, time and place. No additional notice shall be required if a hearing is held open and continued in this manner. If a public hearing is closed, no further public testimony shall be taken without a new public hearing to be noticed as required by law. (Ord. 16882 § 2 (part), 2008)

Chapter 19.40

POST-DECISION PROCEDURES

Sections:

19.40.010 Amendments and revisions to approval.

19.40.010 Amendments and revisions to approval.

Unless another method is expressly provided by this title, any request to amend or revise an approved application shall be considered a new application, which must be decided in accordance with the procedures governing the original application and the standards in effect at the time such new application is submitted to the city, unless the project has "vested" its rights in accordance with this title and state statute. (Ord. 16882 § 2 (part), 2008)

Chapter 19.41

EXPIRATION, EXTENSION AND REINSTATEMENT

Sections:

19.41.010 Time of expiration.

19.41.020 Effect of expiration.

19.41.030 Extension procedures.

19.41.040 Reinstatement.

19.41.050 Effect of decision on extension or reinstatement.

19.41.060 Expiration for projects commenced on or after September 1, 2005.

19.41.010 Time of expiration.

A. Unless otherwise expressly provided by this title, an approved plat application shall automatically expire on the third anniversary of the approval date of the application, and shall become null and void, and all activities under the permit thereafter shall be deemed in violation of this Code, if:

1. The applicant fails to satisfy any condition that was imposed by this Code or as part of the approval of the application or that was made under the terms of any development agreement, within the time limits established for satisfaction of such condition or term;

2. The applicant fails to submit a subsequent complete application required by this title within the time so required; or

3. If no time limit for satisfaction of conditions is specified in the decision on the application, the time shall be presumed to be three years from the date the application was approved, except as provided in Section 19.41.060.

B. Except as provided in Section 19.41.060, or unless a different date is determined pursuant to a vested rights petition under Article 5, an application approved prior to the effective date of this title shall expire in accordance with the terms of the regulations in effect at the time the application was submitted. (Ord. 16882 § 2 (part), 2008) (Ord. No. 18056, § 15, 8-6-2013)

19.41.020 Effect of expiration.

Upon the expiration of an approved application, all previously approved applications for the same project shall also expire on the expiration date prescribed in Section 19.41.010 above if the filing of an application was required to avoid expiration for the previously approved application(s), except as provided in Section 19.41.010. Thereafter, a new application for each application that has been deemed to have expired under this chapter must be approved subject to regulations in effect at the time the new application is submitted. (Ord. 16882 § 2 (part), 2008)

19.41.030 Extension procedures.

A. Unless a different time is expressly provided for a specific procedure by this title, the approving authority for the type of original application may grant an initial extension of the time for expiration of the application for a period not to exceed one year from the date of the expiration of the application, provided that a request for extension is made in writing at least thirty business days before the approved application expires. Every request for extension shall include a statement of the reasons why the expiration date should be extended.

B. A second extension of the expiration date of an officially submitted, complete application may be granted for a period not to exceed one additional year. The extension application must be in writing. Such an extension may be granted by the approving authority for the type of original application. The decision-maker may grant a request for a second extension upon demonstration that circumstances beyond the control of the applicant have resulted in the permit holder's inability to perform the tasks necessary to prevent the permit from expiring before the expiration date.

C. In granting a first extension, the approving authority may impose such conditions as are needed to assure that the land will be developed in

a timely fashion and that the public interest is served. In granting a subsequent extension request, the approving authority may require that one or more newly adopted development standards be applied to the proposed development, provided, however, that the project has not "vested" its rights in accordance with this title and state statute. (Ord. 16882 § 2 (part), 2008)

19.41.040 Reinstatement.

A. Unless otherwise provided by this title, an applicant may request reinstatement of an expired application by filing a written request with the approving authority within thirty business days of the date of expiration. The request for reinstatement shall include a statement of the reasons why the application should be reinstated and extended. A request for reinstatement shall be processed and decided in the manner provided for an extension of an expiration period for more than one year. The expiration date shall not be extended for more than two years from the date a complete application was officially submitted.

B. A reinstatement of an expired application is wholly discretionary, and the approving authority, in determining whether or not to grant reinstatement, shall consider any changes in development conditions in the area, new public health, safety and welfare concerns and regulations, and the application thereof to development of the land. (Ord. 16882 § 2 (part), 2008)

19.41.050 Effect of decision on extension or reinstatement.

The granting of an extension or reinstatement request for a permit also extends or reinstates any other permits otherwise deemed expired under Section 19.41.020. The denial of an extension or reinstatement results in the immediate lapse of the permit and any other permits deemed expired under Section 19.41.020. Thereafter, the applicant shall file a new application for a permit or permits before undertaking any activity authorized by the lapsed permit. (Ord. 16882 § 2 (part), 2008)

19.41.060 Expiration for projects commenced on or after September 1, 2005.

A. Notwithstanding any other provision of this title, for any approved application for which no expiration date was in effect on September 1, 2005, an expiration date two years following the date of approval of the permit shall apply, unless the holder of the permit files a petition before such date for a vested rights determination pursuant to Article 5 of this title, alleging that progress has been made toward completion of the project for which the application subject to expiration was submitted. If a vested rights petition is timely submitted, the city council shall determine the expiration date of the permit in deciding the petition.

B. Notwithstanding any other provision of this title, once a permit has expired under subsection A of this section, all previously approved applications for the same land also shall expire no later than five years from the date of filing of the first application for the project for which the expired application was submitted, unless the holder of such permit(s) files a petition before such date for a vested rights determination pursuant to Article 5 of this title, alleging that progress has been made toward completion of the project for which the applications subject to expiration were submitted. If a vested rights petition is timely submitted, the city council shall determine the expiration date of the previously approved permits in deciding the petition.

C. Progress toward completion of a project shall mean that any of the following events have occurred within relevant time periods:

1. An application for a final plat or plan has been submitted to the city, and remains in effect at the time the vested rights petition was submitted;

2. A good faith attempt is made to file an application with the city to continue the project;

3. Costs have been incurred by applicant for developing the project, including without limitation, costs associated with roadway, utility, and other infrastructure facilities designed to serve, in whole or in part, the project (but exclusive of land

acquisition) in the aggregate amount of five percent of the most recent appraised market value of the real property on which the project is located;

4. Fiscal security is posted with the city to ensure performance of an obligation, and remains in effect at the time the vested rights petition was submitted; or

5. Utility connection fees or other fees for the project have been paid and have not been refunded. (Ord. 16882 § 2 (part), 2008)

Chapter 19.42

ENFORCEMENT, PENALTY AND REVOCATION OF PERMITS

Sections:

19.42.010 Enforcement activities.

19.42.020 Right to enter.

19.42.030 General remedies.

19.42.040 Stop work orders.

19.42.050 Court actions.

19.42.060 Civil court actions.

19.42.070 Fines and penalties.

19.42.080 Review of prior plat approval.

19.42.090 Exemption.

19.42.010 Enforcement activities.

The building official, employees of the code enforcement division, and other enforcing officers as defined or designated by the city manager, constitute authorized officials under this title, and are authorized to issue municipal court citations for violations of this article and to bring to the attention of the city attorney, and any other appropriate authority, any violations or lack of compliance with these regulations. Any department, agency, employee or authorized official of the city having information regarding an alleged violation to this title, shall report that information to as directed by the city manager or his designee to assist in the enforcement of these requirements. (Ord. 16882 § 2(part), 2008)
(Ord. No. 17236, §§ 3, 19, 11-10-2009; Ord. No. 17396, § 28, 8-24-2010; Ord. No. 17811, § 9, 6-5-2012, eff. 6-11-2012)

19.42.020 Right to enter.

An authorized official with enforcement authority shall have the right to enter upon any premises at any reasonable time for the purpose of making inspections of buildings or premises that may be necessary to carry out the duties in the enforcement of this title. Submittal of any application that authorizes construction of structures or improvements shall be construed as a grant of authority to the responsible official to enter on land subject to the application for purposes of enforcing the approved permit. (Ord. 16882 § 2(part), 2008)
(Ord. No. 17236, § 20, 11-10-2009)

19.42.030 General remedies.

If the land is used or developed or if any building or structure is erected or constructed, in violation of this chapter or any application approved hereunder, in addition to other remedies, the city may institute any appropriate action or proceedings to prevent or abate such activity. Appropriate action or proceedings include termination of utility services (water, gas, electric); revocation of permits, licenses, or bonds; and institution of legal action in a court of competent jurisdiction. (Ord. 16882 § 2 (part), 2008)

19.42.040. Stop work orders.

A. Whenever any development or construction activity is being done contrary to any term, condition or requirements of an approved application and/or this title, the city manager or designee may order the work stopped by notice in writing, served on the property owner or authorized agent. Notice shall be given before the order shall be effective, except when the order states that it is effective immediately as being necessary to protect and preserve the public health, safety, or general welfare. Any person thereafter shall cease and desist from further development or construction material to the alleged noncompliance, until corrected by compliance and authorized by person issuing the stop work order to proceed with the work. This prohibition shall extend throughout any appeal period.

B. The owner or authorized agent may appeal the stop work order by giving written notice to the planning official and submitting a competed form as may be required by the city. The city plan commission shall meet to consider the appeal within fifteen calendar days after the date the completed application for appeal is received by the secretary of the commission.

C. The city plan commission shall reach a decision without unreasonable or unnecessary delay. A copy of the decision shall be delivered by certified mail or personal delivery to the applicant. The decision of the city plan commission shall be final, but as may be provided by law, be adjudicated in a court of competent jurisdiction.

D. The city manager or designee may require the placement of temporary erosion control, drainage protection or other measures by the owner or appellant in order to protect the site and the community resources during the appeal period or any subsequent litigation.

E. The application for each appeal must be signed and be accompanied by payment of a nonrefundable application fee in the amount established by appropriate resolution of the city council. (Ord. 16882 § 2(part), 2008)
(Ord. No. 17236, § 21, 11-10-2009; Ord. No. 17396, § 29, 8-24-2010; Ord. No. 17811, § 10, 6-5-2012, eff. 6-11-2012; Ord. No. 18627, § 3, 2-7-2017)

19.42.050 Court actions.

A. The city attorney is authorized to prosecute violations of this title in the appropriate court where jurisdiction lies for the action.

B. In prosecutions for violations of this title, it shall not be necessary to allege or prove a culpable mental state, as said requirement is hereby waived. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 17236, § 27, 11-10-2009)

19.42.060 Civil court actions.

The city attorney is authorized to file and prosecute an action at law or in equity, where permitted under the laws of Texas, in a court of competent jurisdiction to enforce the provisions of this title. The initiation of one form of enforcement action by the city attorney will not preclude the city attorney from initiating any other form of enforcement action. (Ord. 16882 § 2 (part), 2008)

19.42.070 Fines and penalties.

A. Violations of provisions of this title or failure to comply with any of its requirements shall constitute a misdemeanor and punished by a fine not to exceed two thousand dollars. Any person who violates this title or fails to comply with any of its requirements shall upon conviction thereof be fined in accordance the law and this Code.

B. Each calendar day such violation continues shall be considered a separate offense.

C. The owner or owners of any building or premises or part thereof, where anything in violation of this title shall be placed or shall exist, any architect, builder, contractor, agent, persons or corporation employed in connection therewith, and who may have assisted in the commission of any such violation, shall be guilty of a separate offense and upon conviction shall be fined as herein provided. This subsection does not apply to enforcement of a regulation in the city's extraterritorial jurisdiction.

D. Civil Enforcement. Nothing herein contained shall prevent the city from taking any other lawful action necessary to prevent or remedy any violation. Appropriate actions and proceedings may be taken by the city in law or in equity to prevent any violation of these regulations, to prevent unlawful construction, to recover damages, to restrain, correct or abate a violation and to prevent illegal occupancy of a building structure or premises. These remedies shall be in addition to the penalties described in this chapter.

E. It is further the intent and declared purpose of this title that no offense committed, and no liability, penalty, or forfeiture, either civil or criminal, incurred prior to the time that the previous regulations were repealed and this title adopted shall be discharged or affected by such repeal, but prosecutions and suits for such offenses, liabilities, penalties, or forfeitures may be instituted, and causes presently in process may be prosecuted in all respects as if such previous regulations had not been repealed. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 17236, § 22, 11-10-2009)

19.42.080 Review of prior plat approval.

A. If an authorized official determines that there are reasonable grounds for revocation of an

approved preliminary or final plat application, which plat has not been filed of record the city may initiate a review and ask for corrections to the plat or revoke the approval of a preliminary or final plat. Circumstances that warrant review of an approved application shall include the following:

1. A material mistake was made in approving the application;

2. Approval of the application was procured on the basis of material misrepresentations or fraud on the part of the applicant;

3. Development activities being undertaken on the land subject to the development permit are not in conformity with terms of the approved application;

4. The use authorized by the permit is in violation of a condition of approval of the approved application.

B. All review and recommendations for changes or corrections, or actions seeking to revoke a preliminary or final plat which has not been filed of record shall be conducted at a public hearing before the city plan commission. The applicant and any interested parties shall be given notice of the hearing in the manner provided in this title, Chapter 19.38. The public hearing shall be conducted in accordance with the procedures described in this title, Chapter 19.39.

C. Action where plat has been filed of record. Where an authorized official determines that there are reasonable grounds for revocation of a plat which has been filed of record, staff shall consult on the matter with legal counsel for enforcement.

D. In rendering its decision whether to request revisions to or revoke the approved plat, the city plan commission shall determine whether the preliminary or final plat complies with the terms, conditions and requirements of this title. The commission may revoke the application, affirm it, or affirm it with attached conditions that assure that the terms; conditions and requirements of this title shall be met.

E. Following a decision to require corrections or changes to a previously approved plat, or a decision to revoke a plat, and pending any appeal, it is unlawful to undertake or perform any activity that was previously authorized by the approved application without applying for and obtaining approval of a new application. Appeal from a decision to require corrections or changes to an approved plat, or to revoke the approved plat application shall be to the city council. (Ord. 16882 § 2 (part), 2008)

19.42.090 Exemption.

This chapter does not apply to zoning applications or building permits issued under separate ordinance or provision of this code. (Ord. 16882 § 2 (part), 2008)

Chapter 19.43

RESERVED*

*Editor's note—Ord. No. 17236, § 23, adopted November 10, 2009, repealed Ch. 19.43, which pertained to text amendments and derived from Ord. No. 16882 § 2(part), 2008). The provisions contained in the sections thereunder are provided for in state law, the city charter and Chapter 2.08 of the City Code.

Article 5. Relief Procedures

Chapter 19.45

APPEALS

Sections:

19.45.010 Appeals, purpose, applicability and effect.

19.45.020 Appeal requirements.

19.45.030 Processing of appeal and decision.

19.45.040 Criteria.

19.45.050 Expiration and extension.

19.45.010 Appeals, purpose, applicability and effect.

A. Purpose. The purpose of an appeal is to contest most administrative any decision on an application based upon alleged misapplication of the criteria for approval of the application. An appeal shall not be used as a means of amending, varying or otherwise altering the standards of this title or the SDM that apply to the application.

B. Applicability. Unless otherwise provided by this title, any final administrative decision on an application by a city official including a determination by the responsible official that a proposed development is exempt from one or more applications, may be appealed in accordance with Section 19.45.020(A) to the city plan commission. Final decisions on an application by the city plan commission may be appealed to the city council only if expressly provided for in these regulations.

C. Effect. The granting of an appeal supersedes the previous decision and results in the approval, conditional approval or denial of the application for which approval was sought.

D. An appeal under this title does not constitute an appeal for a determination on vested rights, or the proportionality of infrastructure requirements. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 17236, § 27, 11-10-2009; Ord. No. 19327, § 46, 4-26-2022)

19.45.020 Appeal requirements.

A. Who May Appeal. The applicant may appeal a final decision on an application to the appellate authority designated by this article, if any.

B. Form of Appeal. The appeal shall contain a written statement of the reasons why the final decision is erroneous, and shall be accompanied by the fee established by the city council. An appeal by an applicant shall be accompanied by a copy of the application on which the initial decision was rendered. An appeal may include any other documents that support the position of the appellant.

C. Time for Filing Appeal. A written appeal must be submitted to the responsible official within ten business days from the date of notification of the final decision on the application. (Ord. 16882 § 2 (part), 2008)

19.45.030 Processing of appeal and decision.

A. Responsible Official. The responsible official for an appeal is the person designated by this title for processing of the application at issue in the appeal. Upon receipt of a written appeal, the responsible official shall compile all documents constituting the record of the decision on appeal and transmit the record to the appellate authority.

B. Stay of Proceedings. Receipt of a written appeal of a decision on an application stays all proceedings of the city in furtherance of the decision from which appeal is taken, including without limitation, acceptance, processing or issuance of any applications that are dependent on the application being appealed, and any development activities authorized by initial approval of the application.

1. The stay shall be lifted only if the responsible official certifies in writing to the appellate authority that a stay would cause imminent peril to life or property.

2. Thereafter, the stay may be reinstated only by order of the appellate authority or a court of record, on application, after notice to the responsible official, for due cause shown.

C. Hearing and Notice. Notification of the appeal and conduct of the hearing thereon shall be in accordance with Chapters 19.38 and 19.39 of this title. The initial hearing on the appeal shall be held within twenty-five business days after the filing of the appeal with the responsible official, unless a different time is prescribed by the provisions of this title.

D. Decision on Appeal. The appellate authority shall decide the appeal within thirty business days. The appellate authority shall affirm, reverse or modify the decision from which the appeal was taken.

E. Notification of Decision on Appeal. The appellant and the applicant for the development permit shall be notified of the decision on appeal in the manner provided in Section 19.38.040. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 17236, § 27, 11-10-2009)

19.45.040 Criteria.

In deciding the appeal, the appellate authority shall apply the same criteria that govern the initial decision on the application under the provisions of this title. (Ord. 16882 § 2 (part), 2008)

19.45.050 Expiration and extension.

For purposes of determining the expiration or extension periods under this title, the date of the appellate authority's granting of relief on an appeal is the date on which the application is deemed approved. (Ord. 16882 § 2 (part), 2008)

Chapter 19.46

PROPORTIONALITY APPEAL

Sections:

19.46.010 Policy established appeal requirements.

19.46.020 Purpose, applicability and effect.

19.46.030 Appeal requirements.

19.46.040 Processing of appeals and decision.

19.46.010 Policy established appeal requirements.

A. Adequate Public Facilities Policy.

1. Adequate Service for Areas Proposed for Development.

a. Land proposed for development in the city and the city's extraterritorial jurisdiction must be served adequately by essential public facilities and services, including parks, water and wastewater, roadway and drainage facilities.

b. Land shall not be approved for platting or development unless and until adequate public facilities necessary to serve the development exist or provision has been made for the facilities, whether the facilities are to be located within the property being developed or off-site.

2. Responsibilities of the Developer to Provide Adequate Facilities. The developer shall be responsible for the following to ensure the facilities provided are adequate:

a. Phasing of development or improvements in order to ensure the provision of adequate public facilities;

b. Extensions of public facilities and roadways (including any necessary on-site and off-site facilities) to connect to existing public facilities or roadways;

c. Providing and/or procuring all necessary property interests, including rights-of-way and easements, for the facilities (whether on-site or offsite);

d. Providing proof to the city of adequate public facilities;

e. Making provisions for future expansion of the public facilities as needed to serve future developments, subject to the city's oversize participation regulations (e.g., when the city will provide for the cost of oversizing facilities), if applicable;

f. Providing for all operations and maintenance of the public facilities, or if the city is not the provider, providing proof that a separate entity will be responsible for the operations and maintenance of the facilities;

g. Providing all fiscal security, if required, for the construction of the public facilities;

h. Obtaining approvals from any applicable utility providers other than the EPWU; and

i. Complying with all requirements of utility providers, including the city or other applicable providers.

3. Responsibilities of the Developer to Conform to Adopted Plans. The developer shall ensure that facilities provided are in conformance with the city's adopted plans, ordinances and regulations.

a. Proposed facilities serving new development shall conform to and be properly related to the public facility elements of the city's adopted comprehensive plan; other adopted master plans for public facilities and services, and applicable capital improvements plans, and shall meet the service levels specified in such plans.

b. The design and construction of all water and wastewater facilities to serve the subdivision shall be in conformance with the city's and EPWU's master plans for water and wastewater facilities and with the city's and EPWU's technical specifications. (Ord. 16882 § 2 (part), 2008)

19.46.020 Purpose, applicability and effect.

A. Purpose. The purpose of a proportionality appeal is to assure that the application of uniform dedication and construction standards to a proposed development projects does not result in a disproportionate burden on the property owner, taking into consideration the nature and extent of the demands created by the proposed development on the city's public facilities systems.

B. Applicability. An appeal under this title may be submitted by a property owner or applicant to contest any requirement to dedicate land or to construct public improvements for dedication to the public that is imposed to a plat application or to any related development application authorized by the city, whether the requirement is under uniform standards, or attached as a condition to approval of a permit. An appeal under this title shall not be used to waive standards on grounds applicable to any petition for an alternative subdivision designs, waiver, or exception as found in other chapters of this title.

C. Effect. If the relief requested under the appeal is granted in whole or in part by the city council, the dedication, fee or construction requirement initially imposed shall be modified accordingly. In the event the original application was denied by the decision-maker based upon the property owner's failure to incorporate the dedication or construction requirement in the proposed permit or plat, the application shall be remanded to the original decision-maker for a decision consistent with the relief granted by the council. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 17236, § 27, 11-10-2009)

19.46.030 Appeal requirements.

A. Who May Apply. A property owner or applicant may appeal when a dedication or construction requirement has been applied to development application, a plat, or is the basis for denying the plat application.

B. Form of Appeal. The appeal shall allege that application of the standard relating to the dedication, fee or construction requirement is not roughly proportional to the nature and extent of the impacts created by the proposed development on the city's water, wastewater, stormwater, parks, or roadway system, as the case may be, or does not reasonably benefit the proposed development.

C. Study required. The petitioner shall provide a copy of any studies submitted with the development application or plat that support the petition for relief including the following information:

1. Impact of the proposed development on the capacity of the city's water, wastewater, stormwater, parks, or roadway system to be utilized by the proposed development, employing standard measures of capacity and equivalency tables relating the type of development proposed to the quantity of system capacity to be consumed by the development. If the proposed development is to be developed in phases, such information also shall be provided for the entire development proposed, including any phases already developed.

2. Comparison of the capacity of the city's public facilities system(s) to be consumed by the proposed development with the capacity to be supplied to such system(s) by the proposed dedication of an interest in land or construction of capital improvements. In making this comparison, the impacts on the city's public facilities system(s) from the entire development shall be considered.

3. Any other information that shows the alleged disproportionality between the impacts created by the proposed development and the dedication or construction requirement imposed by the city.

D. Time for filing appeal and study. An appeal shall be filed with the responsible official within thirty business days from the date the requirement to dedicate land or to construct public improvements for dedication to the public is imposed on the applicant. The study in support of the petition shall be filed within sixty business days of the initial decision, unless the petitioner seeks an extension in writing. The responsible official may extend the time for submitting the study for a period not to exceed an additional thirty business days for good cause shown. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 18056, § 16, 8-6-2013)

19.46.040 Processing of appeals and decision.

A. Responsible official. The city manager or designee is the responsible official for processing a proportionality appeal.

B. Evaluation, recommendation. The city manager or designee shall evaluate the appeal and supporting study and shall make a recommendation to the city plan commission and city council based upon the information contained in the study, any comments received from El Paso County, and the engineer's analysis.

C. Decision-maker. The city council shall decide the appeal.

D. Hearing. The city council shall conduct a hearing in accordance with Chapter 19.39 of this title within sixty business days after the study supporting the petition is submitted to the director.

E. Burden of proof. The petitioner bears the burden of proof to demonstrate that the application of a dedication or construction requirement that is uniformly applied imposes a disproportionate burden on the petitioner.

F. Decision. The city council shall consider the petition for relief from a dedication, fee or construction requirement based upon the following criteria:

1. The city council shall determine whether the application of the standard or condition requiring dedication of an interest in land for public improvements or construction of capital improvements is roughly proportional to the nature and extent of the impacts created by the proposed development on such city's water, wastewater, stormwater, parks, or roadway system, and reasonably benefits the development.

2. In making such determination, the council shall consider the evidence submitted by the applicant, any testimony submitted by the applicant, the engineer's analysis and director's recommendation and, where the property is located within the city's extraterritorial jurisdiction, any recommendations from El Paso County.

G. Action. Based on the criteria in subsection E above, the city council shall, within thirty days following the hearing, take one of the following actions:

1. Deny the petition for relief, and impose the standard or condition in accordance with the initial decision; or

2. Grant the petition for relief, and waive any dedication or construction requirement to the extent necessary to achieve proportionality; or

H. Notification of decision on petition. The petitioner shall be notified of the decision on the petition for relief in the manner provided in Chapter 19.38 of the subdivision ordinance, within ten business days of the decision.

I. Effect. The relief granted on the petition shall remain in effect for the period the plat or related approved development application is in effect, and shall expire upon expiration of the plat or related application. (Ord. 16882 § 2 (part), 2008) (Ord. No. 17236, § 9, 11-10-2009; Ord. No. 17396, § 30, 8-24-2010; Ord. No. 17811, § 11, 6-5-2012, eff. 6-11-2012; Ord. No. 18627, § 4, 2-7-2017)

Chapter 19.47

RESERVED*

* **Editor's note**—Ord. No. 17539, § 1, adopted April 19, 2011, repealed Ch. 19.47, which pertained to vested rights and derived from Ord. 16882 § 2 (part), 2008; Ord. No. 1723, § 27, 11-10-2009; Ord. No. 17396, § 31, 8-24-2010.

Chapter 19.48

PETITION FOR WAIVERS OR EXCEPTIONS

Sections:

19.48.010 Purpose, applicability and effect.
19.48.020 Application and decision-maker.
19.48.030 Criteria for approval.
19.48.040 Effect of approval.

19.48.010 Purpose, applicability and effect.

A. Purpose. The purpose of a petition for a waiver or exception to the standards or requirements of this title is to determine whether one or more standards applicable to plats within this title should not be applied to an application.

B. Applicability. An applicant may file a petition for waiver or exception of one or more standards applicable to a preliminary plat, or where no preliminary plat application has been submitted for approval, to the standards applicable to a final plat in accordance with Chapters 19.04 and 19.08.

C. A petition for a waiver or exception shall not be accepted for a vested rights or proportionality determination under this chapter. (Ord. 16882 § 2 (part), 2008)

19.48.020 Application and decision-maker.

A. The waiver or exception petition shall be decided by the city plan commission in conjunction with the application for approval of the preliminary plat.

B. A request for a waiver or exception pursuant to this chapter shall be submitted in writing by the subdivider with the filing of a subdivision application. The request shall state fully the grounds for the waiver or exception request and all of the facts relied upon by the subdivider. No waiver or exception may be considered or granted by the city plan commission unless the subdivider has made written request for such request at the time of the subdivision application submittal, or an amended subdivision application submittal. (Ord. 16882 § 2 (part), 2008)

19.48.030 Criteria for approval.

A. The following criteria shall be applied in deciding a waiver or exception:

1. There are special circumstances or conditions arising from the physical surroundings, shape, topography or other feature affecting the land such that the strict application of the provisions of this title to the proposed use would create an unnecessary hardship or inequity upon or for the applicant, as distinguished from a mere inconvenience, in developing the land or deprive the applicant of the reasonable and beneficial use of the land;

2. The circumstances causing the hardship do not similarly affect all or most properties in the vicinity of the applicant's land;

3. The waiver or exception is necessary for the preservation and enjoyment of a substantial property right of the applicant;

4. Granting the waiver or exception will not be detrimental to the public health, safety or welfare, or injurious to other property within the area;

5. Granting the waiver or exception will not have the effect of preventing the orderly use and enjoyment of other land within the area in accordance with the provisions of this title, or adversely affect the rights of owners or residents of surrounding property;

6. The hardship or inequity is not caused wholly or in substantial part by the applicant;

7. The request for a waiver or exception is not based exclusively on the applicant's desire for increased financial gain from the property, or to reduce an existing financial hardship; and

8. The degree of variation requested is the minimum amount necessary to meet the needs of applicant and to satisfy the standards in this title.

B. Such findings by the city plan commission shall not have the effect of nullifying the intent and purpose of these regulations; the granting of the waiver or exception of conditions will not be

detrimental to the public safety, health or welfare or injurious to other property; the relief sought will not in any manner vary the provisions of any other city ordinance or regulation, the plan for El Paso, or the official zoning map of the city, except that those documents may be amended in the manner prescribed by law; and further provided, that the city plan commission shall not approve a waiver or exception unless it shall make findings based upon the evidence presented in each specific case.

C. Burden of Proof. The applicant bears the burden of proof to demonstrate that the application of a construction requirement that is uniformly applied imposes a disproportionate burden. The subdivider must also demonstrate an alternative method of development that will improve the aesthetic value of the subdivision while giving equal emphasis to safety, economy, tax yield, maintenance cost, response time, drainage, vehicular access and pedestrian passage.

D. Decision. The city plan commission shall consider the waiver or exception petition and, based upon the criteria set forth in subsection A above, shall take one of the following actions:

1. Deny the petition, and impose the standard or requirement as it is stated in this title; or

2. Grant the petition, and waive in whole or in part the standard or requirement as it is stated in this title. In approving a waiver or exception, the city plan commission may require such conditions as will, in its judgment, secure substantially the purposes described in this title.

E. Notification of Decision on Petition. The applicant shall be notified of the decision on the waiver or exception petition in the manner provided in Section 19.38.040. (Ord. 16882 § 2 (part), 2008)
(Ord. No. 17236, § 27, 11-10-2009)

19.48.040 Effect of approval.

Effect. The waiver or exception granted shall remain in effect for the period the plat or related approved application is in effect, and shall expire upon expiration of the plat or related application. Extension of the plat also shall result in extension of the relief granted on the petition. (Ord. 16882 § 2 (part), 2008)

Article 6. Definitions

Chapter 19.50

DEFINITIONS

Sections:

19.50.010 Usage and interpretation.

19.50.020 Definitions in other locations within this title.

19.50.030 Definitions.

19.50.010 Usage and interpretation.

A. Usage. The following definitions are intended to provide descriptions for words and terms used within this title. Absent any conflict, words and terms used in this title shall have the meanings ascribed thereto in this title.

B. Conflicts. When words and terms are defined herein, and are also defined in other ordinance(s) of the city, shall be read in harmony unless there exists an irreconcilable conflict, in which case the definition contained in this title shall control.

C. Present and Past Tenses. Words used in the present tense include the future; words in the singular number include the plural number, and words used in the plural number include the singular number.

D. Specific Word Usage. The word shall is mandatory and not directory. The word structure includes the word building.

E. Words Not Defined. For any definition not listed in this chapter of this title, the definition found within the latest edition of Webster's Dictionary shall be used. (Ord. 16882 § 2 (part), 2008)

19.50.020 Definitions in other locations within this title.

For the purpose of this title, certain terms and words are to be used and interpreted as defined within the articles or sections of this title wherein they apply to certain regulations. These sections include but are not limited to "subdivision ordinance, dormant projects," specifically within section 19.47.080. (Ord. 16882 § 2(part), 2008) (Ord. No. 17236, § 24, 11-10-2009)

19.50.030 Definitions.

As used in this title:

"Abutting" as defined in the zoning ordinance, also meaning "adjacent," "adjoining" and "contiguous to." It may also mean having a lot line in common with a right-of-way or easement, or with a physical improvement such as a street, waterline, park, Arroyo or open space.

Access or Accessway, Public or Private. "Public or private access or accessway" as defined in the zoning ordinance, a means of approaching or entering a property. Includes a right of passage to and from an adjacent street, alley or property.

"Accessory" means being secondary or subordinate to something else.

Acreage, Gross. "Gross acreage" as defined in the zoning ordinance, meaning the total area within a parcel of land.

Acreage, Net. "Net acreage" means the total area within a parcel of land, less any rights-of-way, open space or land dedicated to public use.

"Alley" as defined in the zoning ordinance, means a public way which is used primarily for vehicular access to the back or side of properties, and affords only secondary means of access to property abutting thereon.

Amending Plat. See "Plat, Amending."

"Amenity" means aesthetic or other physical improvements to a development that increase its quality, desirability, and/or marketability to the public. Amenities may vary according to the type and nature of development, and examples include a naturalized retention/detention pond (refer to definition herein), a recreational facility, landscaping or large trees.

Apartment. See "Dwelling - Multiple-Family."

"Appeal" means a request for review of and relief from any decision applying a provision of this code and which is authorized pursuant to this title, Article 5.

Application, Complete. See "Complete Application."

"Approval" means "approval" of any application, subdivision improvement plans, plat etc., constitutes a determination by the official, board, commission or city council responsible for such determination that the application or plans are in compliance with the minimum provisions of this title. Such approval is not an "approval" of the engineering or surveying contained in the plans as the design engineer or surveyor that sealed the plans is responsible for the adequacy of such plans.

Area of Lot. See "Lot Size."

"Area regulations" means the regulations controlling minimum lot area, minimum lot depth and width, maximum building area or coverage, as well as required front, side and rear yards, as contained in this title and in the zoning ordinance.

Arroyo. An "Arroyo," is a naturally occurring elongated depression in the earth, including the sloping sides from rim to rim, following an historic waterflow that may temporarily fill with water after a stormwater (see Stormwater) runoff event.

Arterial Thoroughfares. See "Street, Arterial."

"As-built/record drawings" means a group of drawings that depicts the final configuration of the installed or constructed improvements of a development, improvements which have been verified by the contractor as their installation or construction occurs during development. The as-built or record drawings should reflect the construction plans (or working drawings) used, corrected, and/or clarified in the field. For the purposes of this title, the terms "as-built drawing" and "record drawing" shall be interchangeable.

"Association" means usually a homeowners (HOA) or property owners association (POA). An incorporated or unincorporated nonprofit organization operating under recorded land agreements through which: (a) each lot owner in a planned unit or other described land area is automatically a member; (b) each lot is automatically subject to a charge for a proportionate share of expenses for the organization's activities such as maintaining common property; and (c) the charge, if unpaid, becomes a lien against the property.

"Bikelane" means a portion of a street that has been designated for exclusive use by bicycles, and which is distinguished from the rest of the roadway by a painted stripe, lane markings or other similar devices.

"Block" means an area enclosed by streets. If said word is used as a term of measurement, it shall mean the distance along a side of a street between two intersecting streets, or if the street is of a dead-end type, a block shall be considered to be measured between the nearest street and the end of such dead-end street.

"Block length" means the distance, as measured along the street centerline, from one end of a row or group of lots to the other end. A block is determined by the streets along its boundary which surround one or more lots. Such streets shall be through streets, not cul-de-sac streets. A block adjacent to a cul-de-sac shall not be counted as a block.

Bond. See "Security."

"Building" means any structure permanently affixed to a lot or lots and having a roof supported by columns or walls, for the housing or enclosure of persons, animals or property of any kind.

"Building" or "buildable area" means the portion of a lot or site, excluding required yard areas, setbacks or open space within which a structure may be built.

"Building code" means all regulations adopted by the city through the adoption of the various international building codes and titles 17 and 18 of the City Code.

"Building line" means a line at a specified distance from the street, marking the minimum distance from the street line that a building may be erected.

"Building official" means the building official shall be the person identified or designated pursuant to chapter 18.02 of this Code and is the individual who ensures compliance with the building codes of the City of El Paso, Texas, and with any applicable regulations within this title. This definition also includes any designee of the building official.

"Building permit" means an instrument in writing signed by the building official or other designated responsible official authorizing described construction on a particular lot.

"Build-to line" means an alignment that establishes a certain distance from the curb line to a line along which the building shall be built. The goal of a build-to line is to establish a uniformity of building frontages.

Centerline, streets or alleys. "Streets or alleys centerline" means an imaginary line erected midway between the bounding right-of-way lines of a street or alley. Where the bounding right-of-way lines are irregular, the centerline is to be determined by the subdivision improvement plan engineer. Where the street is private, the centerline shall be measured from the easement boundaries rather than right-of-way.

"Certificate of convenience and necessity (CCN)" means a permit issued by the Texas Commission on Environmental Quality (TCEQ) which authorizes and obligates a retail public utility to furnish, make available, render, or extend continuous and adequate retail water or sewer utility service to a specified geographic area.

"Certificate of occupancy" means a written instrument executed by the building official authorizing a described use of a lot or building as set forth in the building code and in this title.

"Certify" means whenever it is required that an agent or official attest to the existence of some fact or circumstance, the city by administrative rule may require that such declaration be made in any manner, oral or written, which provides reasonable assurance of the accuracy of the declaration.

"City" means the City of El Paso, Texas.

"City council" means the elected body that governs the City of El Paso under state law and charter and is authorized to adopt ordinances. It is responsible for the acceptance and maintenance of any offered dedications indicated on a plat by entry use or improvement within the city limits.

"City engineer" means the engineer appointed by the city manager to serve in this position, who shall furnish or cause to be furnished required assistance, approval of construction drawings as to compliance with City Codes, inspection and acceptance of public improvements in the administration of this title.

"City manager" means that person holding the office of city manager under the terms of the El Paso Charter.

"City plan commission" means the appointed board also known as the planning and zoning commission under state law which is responsible for subdivision approval within the corporate limits of El Paso and within the extraterritorial jurisdiction (ETJ).

"City planner." See "planning official."

"City standards" means all of the city's technical standards and specifications that apply to development, together with all tables, drawings, and other attachments. All city standards described or referred to in this title are adopted by reference and are a part of this title in the same way as if they were set out at length herein. See also the City of El Paso Street Design Manual (SDM).

"Clearing" means the removal of surface vegetation without modifying, impacting, or improving the drainage pattern(s).

Cluster Development. See "Subdivision, Cluster."

"Code" means the adopted Code of Ordinances of the City of El Paso titled "the El Paso City Code".

Collector Street. See "Street, Collector."

"Commence(ing) construction" means the initial disturbance of soils associated with clearing, grading, or excavating activities or other construction or development.

"Commercial unit development" means a platted lot, zoned for commercial, manufacturing or industrial uses, which is further divided into more than one lot and where all additional lots are provided access to a public or private street through a private easement. The access shall be a parcel of land over which a private easement for road purposes, having a minimum paved width of twenty

feet, is granted to all owners of property within the commercial unit development. In each instance the instrument creating such private easement, including the original agreement and any changes thereto resulting from the sale, lease or creation of additional lots, shall be held in perpetuity between all signatories, owners or lessees, to the agreement or their successors in interest, shall run with the land and be unseverable, and shall be duly recorded and filed with the office of the county clerk.

Commission. See "city plan commission."

"Complete application" means an application that meets the standards of this title and has been deemed complete by the city in accordance with Section 19.37.020 of this title and the Texas Local Government Code, Chapter 245, or successor statute.

"Comprehensive plan" means the official El Paso Comprehensive Plan titled "The Plan for El Paso" as defined in the zoning ordinance.

"Concept plan" means a component of the regulations for a planned development district that complies with the requirements of the zoning ordinance and the subdivision ordinance that illustrates elements of the proposed planned residential district, such as the location and arrangement of uses, the relationship of such uses to base zoning districts, development phasing, planned public improvements, open space, proposed amenities and the overall design of the development.

"Conservation covenant" means a voluntary declaration by a property owner of a covenant that is filed of record in the El Paso County Real Property Records on property and is intended to preserve permanently the conservation values of an area.

Construction. See "Development."

"Construction plans" means the drawings and technical specifications that conform to this title and all other applicable ordinances of the City of El Paso. Construction plans, including bid documents and contract conditions, where applicable, provide a graphic and written description of the character and scope of the work to be performed in construction of a development. See also Plans, Subdivision Improvement.

Corner Lot. See "Lot, Corner."

"Corporate limits" means the boundaries of the City of El Paso.

Council. See "City Council."

"County" means the County of El Paso, Texas.

"County commissioners' court" means the Court of the County of El Paso which is responsible for the maintenance of any offered dedications indicated on a plat by entry, use, or improvement within the extraterritorial jurisdiction.

Covenant, restrictive. "Restrictive covenant" also referred to as a "deed restriction," means a restriction on the use of land usually set forth or referred to in the deed. Such covenants shall run with the land and are binding upon present and subsequent owners of the property.

"Cul-de-sac" means a local street having one inlet/outlet to another street and terminated on the opposite end by a vehicular turnaround. A cul-de-sac has no intersections with other streets other than the one inlet/outlet.

Deed restriction. See "Covenant, Restrictive."

"Density" means the number of dwelling units that may be constructed per acre, calculated by dividing the site area by minimum required lot area in the underlying zoning district.

Depth of Lot. See "Lot Depth."

"Design standards for construction, El Paso (DSC)" means the detailed specifications, procedures and standards approved administratively for the purpose of regulating the design and construction of specified improvements. The DSC also includes checklists and application forms for approvals required by this title. The El Paso Design Standards for Construction are incorporated by reference to this title and are found in the Street Design Manual adopted as Appendix 113 to Title 19 of the El Paso City Code.

"Developer" means a person or governmental entity undertaking the division or improvement of land and other activities covered by this title, including the preparation of a plat showing the

layout of the land and the public improvements involved therein. The term "developer" is intended to include the terms "subdivider" and, when submitting platting documents, "applicant."

"Developer agreement" means an agreement, other than a "development agreement" or a "developer participation agreement," between the city and a property owner through which the city or property owner agrees to a schedule of improvements, a phasing of a project or any other agreement between the parties.

"Developer participation agreement" means an agreement between the city and a property owner through which the city or property owner agrees to pay a proportional percentage of a required public improvement or public amenity or for a portion of improvements in excess of those required under current ordinance.

"Development" means initiation of any activities related to the platting or subdivision of land or construction, reconstruction, conversion, or enlargement of buildings or structures, the construction of impervious surfaces (e.g., parking lots), the installation of utilities, roadways, drainage facilities or other infrastructure; or any disturbance of the surface or subsurface of the land in preparation for such construction activities, including without limitation removal of vegetation, grading, paving, clearing, filling, or removal of soil, and any mining, dredging, excavation or drilling operations.

"Development agreement" means an agreement authorized and in accordance with Section 212.172 of the Texas Local Government Code between the city and a property owner in the extra-territorial jurisdiction.

"Development application" either a petition for a legislative decision, such as a zoning amendment, or an application for a development permit, such as a plat or a building permit.

"Development coordinating committee" also known as the "DCC," means the committee of the city comprised of representatives of city departments and may include other agencies which are responsible for recommending implementation of subdivision ordinance requirements.

Development, Infill. "Infill development" means a new development on scattered or aggregated vacant parcels of land in a built up area.

"Development permit" means a decision by the commission, board or responsible official designated by this title, acting in an administrative or quasi-judicial capacity, that authorizes the holder of the permit to undertake one or more development activities or to file further applications needed to initiate or continue development activities authorized under this title. The filing of a complete application for a development permit may or may not stay the city from adopting new standards applicable to the permit or any subordinate permit, depending on the nature of the standards.

Development Plan. See "Land Study."

"Development standards" means all regulations, design standards, requirements and restrictions that apply to a development.

"Driveway" means an entranceway serving primarily vehicles that allows for access to a lot or facility, and is intended for vehicular movements between the roadway and any portion outside the street right-of-way.

"Dwelling" means a building, structure or portion thereof, designed or used primarily for residential occupancy with culinary and bathroom facilities. A dwelling does not include boats, trailers, motor homes, hotels, motels, motor lodges, boarding or lodging houses.

"Dwelling - multiple-family (apartment)" as defined in the zoning ordinance, means a building, or portion thereof, designed or used for occupancy by three or more families, all living independently of each other in separate dwelling units.

"Dwelling - single-family" as defined in the zoning ordinance, means a building designed for or occupied exclusively by one family.

"Dwelling - single-family detached" as defined in the zoning ordinance, means a dwelling unit for one family that is not attached to any other dwelling unit.

"Dwelling - town home" or "townhouse" as defined in the zoning ordinance, means a single-family dwelling designed to be sold as a unit, but forming one of a group or series of three or more attached single-family dwellings separated from one another by common property lines.

Easement, Emergency Access. "Emergency access easement" means an area created by plat or separate instrument filed with the office of the county clerk other than a dedicated street or place, or an alley, which is maintained free and clear of buildings, structures and other obstructions for the purpose of providing free passage of service and emergency vehicles.

"Easement private" means a right-of-way granted for the limited use of private land where general use and maintenance of such right-of-way is governed by an agreement which runs with the land. For the purposes of a commercial unit development, a private easement is in-severable therefrom, and is recorded with the office of the county clerk. A private easement may include certain improved portions of private land which are intended for the general use, enjoyment, convenience and benefit of all signatories, owners and lessees, and their permittees, including to, but not limited to, parking areas and spaces, roadways (including roads or lateral access drives), driveways, entrances to dedicated public or private streets, sidewalks, landscaped areas, and truck loading or delivery areas.

"Easement public" means an easement dedicated by subdivision plat or metes and bounds to and for use by the public, and which is included within the dimensions or area of lots or parcels.

Easement, utility. "Utility easement" means an easement dedicated by subdivision plat or metes and bounds to and for use by the public solely for utilities, either public or franchise, and which is included within the dimensions or area of lots or parcels.

"El Paso Water Utilities (EPWU)" means the public service board established May 22, 1952 by city Ordinance 752 to manage and operate the water and wastewater system for the City of El Paso.

"Enforcing officer" means the designated official of the City of El Paso or his designated representative that ensures that regulations are adhered to and standards required are met.

"Engineer" means a person who has been duly licensed by the Texas Board of Professional Engineers to engage in the practice of engineering in the State of Texas. (Also known as "engineer," "professional engineer," "registered engineer," "registered professional engineer," or "licensed engineer").

"Environmental protection agency (EPA)" means the U.S. Environmental Protection Agency, or, where appropriate, the administrator or other duly authorized official of that agency.

"Erect" means to construct, reconstruct, install or build.

"Erosion" means the wearing away of land surface by detachment and transport of soils by water and wind.

ETJ. See "Extraterritorial Jurisdiction."

"Excavation" means any digging, trenching, scraping or other activity that disturbs natural soil or rock to a depth of two feet or more, other than soil disturbance incidental to the removal of trees or vegetation.

"Exception" means a grant of relief to a person from the requirements of this title under certain conditions when specific enforcement would result in unnecessary hardship. An exception, therefore, permits construction or development in a manner otherwise prohibited by this title. Also, see "Waiver."

"Exemption" means a specified reason why a particular development is not subject to the requirements to plat or to a specific provision of this title.

"Extraterritorial jurisdiction (ETJ) means the unincorporated area, not a part of any other municipality, which is contiguous to the corporate limits of the City of El Paso, the outer limits of which are measured from the extremities of the

corporate limits of the city outward for the distance of five (5) miles as stipulated in Chapter 42 of the Texas Local Government Code and in which area the city may regulate subdivisions and enjoin violation of certain provisions of this title.

"Family" as defined in the zoning ordinance, means any individual or group of persons related by blood, adoption or marriage, or not more than five unrelated persons living as a single housekeeping unit or home.

Farm, Agricultural. "Agricultural farm" means an area used for the production thereon of farm crops such as vegetables, fruit trees, cotton, or grain, and the storage of such crops.

"Farm, ranching and livestock" means an area used for the raising thereon of the usual farm animals such as horses, chickens, cattle, and sheep and including the necessary accessory uses for raising, treating, and storing animals on the premises, but not including within the city limits the commercial feeding of offal or garbage to swine or other animals and not including any type of husbandry specifically prohibited by ordinance or law.

Filing. See "Submission."

Filing, Plat. See "Recording."

Final Plat. See "Plat, Final."

Freeway. See "Street, Freeway."

Frontage, Lot. "Lot frontage" as defined in the zoning ordinance, means the distance for which the front boundary line of the lot and the street line are coincident.

Frontage, Street. "Street frontage" as defined in the zoning ordinance, means all of the property on one side of a street between two intersecting streets (crossing or terminating), measured along the line of the street, or, if the street is dead-ended, then all the property abutting on one side between an intersecting street and dead-end of the street.

"Grade" means the horizontal elevation of any surface specified in percentage terms.

Grade, Building. "Building grade" means the average elevation of the highest and lowest elevation measured at the finished surface of the ground at any of the exterior corners of the building or structure.

"Grading" as used in this title shall have the same meaning as defined in Section 18.44.030.

"Green" means an open space, available for unstructured recreation. A green may be spatially defined by landscaping rather than by building frontages. Its landscape shall consist of lawns and trees, naturalistically disposed. The minimum size shall be one-half acre and the maximum shall be eight acres.

"Groundcover" means a spreading plant, including sods and grasses less than eighteen inches in height, used mainly for erosion control.

Impervious Cover. See "Coverage."

"Improved lot or tract" means a lot or tract that has a structure or other improvement on it that causes an impervious coverage of the soil under the structure or improvement.

"Improvement" means any man-made fixed item which becomes part of or placed upon real property.

Improvement, Public. "Public improvement" means any improvement, facility or service together with its associated public site, right-of-way or easement necessary to provide transportation, drainage, public or private utilities, parks or recreational, energy or similar essential public services and facilities, for which the city may ultimately assume the responsibility for maintenance and operation or ownership, or both.

Improvement, Temporary. "Temporary improvement" means improvements built and maintained by a subdivider during construction of the subdivision and removed prior to the acceptance of the improvements for maintenance or the release of any bond required if they are located within the subdivision. Temporary improvements built outside of the subdivision shall be removed when they are no longer necessary as approved by the subdivision improvement plan engineer.

"Interested person" means a person who is affected by a final decision of the city to the extent that such impact exceeds the impact of the deci-

sion on a member of the general public. An interested person may include any officer or agency of the city.

"Intersection" means the junction of any two public rights-of-way crossing at grade.

"Land study" means the initial plan for a subdivision to be developed in phases that delineates the sequence and timing of development within the proposed subdivision and that is reviewed and decided under Chapter 19.02 of this title. It is a plan submitted for the purpose of implementing an integrated development scheme for all phases of a proposed development and to foster general consensus regarding compliance with this title. For the purpose of vesting, a land study must meet all requirements of this title.

"Land use" means the purpose for which land, or the structure on the land, is being utilized.

"Landlock" means to prevent access to a lot or parcel of land, which has no other legal surface access to a public street.

"Landscaping" means an area devoted to and maintained predominantly with living plant material including lawn, groundcover, trees, shrubs, and other plant materials; and also including accessory decorative outdoor landscape elements such as fountains, paved or decorated surfaces (excluding driveways, parking, loading, or storage areas), and sculptural elements. Also may be referred to as landscaped area.

"Lot" means an undivided tract or parcel of land that is or may be offered for sale, conveyance, transfer or improvement and is designated as a distinct and separate tract, and which is identified by a tract, lot number, or symbol in a duly approved subdivision or development plat that has been properly filed of record. Such land is occupied or intended to be occupied by a main building or group of main buildings and accessory buildings, together with such yards, open spaces, lot width and lot areas as are required by as the zoning ordinance, and having frontage on a public accessway either shown on a plat of record or described by metes and bounds. Provided, however, that access may be provided through a private easement in a commercial unit development or in an alternative subdivision design in accordance with this ordinance.

"Lot area" means the square foot area or the acreage of a lot within the bounding property lines and exclusive of dedicated streets and alleys, but may include easements.

"Lot coverage." See "Coverage."

"Lot depth" as defined in the zoning ordinance, means the distance between the front and rear lot lines, measured as follows:

1. Where the lot lines are straight, from the midpoints thereof;

2. Where the lot line curves in or out, from the midpoint of the arc between the side property lines;

3. Where there is no rear lot line, the lot depth shall be the length of a straight line connecting the bisecting point of the front lot line and the intersection of the two sidelines.

"Lot line" means a property (ownership) boundary of a lot, as defined herein.

"Lot of record" means a lot shown upon a plan of subdivision or upon a plat attached or referred to in a deed described by metes and bounds in a deed recorded with the county clerk prior to the date of passage of the first El Paso subdivision ordinance or a tract specifically provided for in this title.

Lot width, average. "Average lot width" as defined in the zoning ordinance, means the lot area divided by the lot depth.

Lot, corner. "Corner lot" means a lot abutting upon two or more streets at their intersection(s), as defined in the zoning ordinance.

Lot, double frontage. "Double frontage lot" as defined in the zoning ordinance, means any lot having frontage on two streets which are nonintersecting or which intersect at an angle of less than or equal to seventy degrees with reference to the lot, as distinguished from a corner lot.

Lot, flag-shaped or panhandle. "Panhandle" or "flag-shaped lot" means an irregularly shaped

lot that takes its sole access via a long, narrow strip of land connecting the principal building site to a public street.

Lot, interior. "Interior lot" as defined in the zoning ordinance, means any lot having frontage on one street only.

Lot, key or keyed. "Key" or "keyed lot" means any lot having an essentially trapezoidal shape, with a rear boundary greater in width than the front boundary and located on a street curve having a centerline radius less than two hundred fifty feet.

Lot, substandard. "Substandard lot" means a lot that has less than the minimum area or minimum dimensions required in this title or in the zoning district in which it is located.

"Manufactured home" as defined in the zoning ordinance as a Dwelling - Manufactured Home (HUD-Code), means a structure constructed on or after June 15, 1976, according to the rules of the United States Department of Housing and Urban Development, transportable in one or more sections, which, in the traveling mode, is eight body feet or more in width or forty body feet or more in length, or, when erected on site, is three hundred twenty or more square feet, and which is built on a permanent chassis and designed to be used as a dwelling with or without a permanent foundation when connected to the required utilities, and includes the plumbing, heating, air-conditioning, and electrical systems. The term does not include a recreational vehicle as defined by 24 C.F.R. Section 3282.8(g).

"Manufactured/mobile home park" as defined in the zoning ordinance, means a parcel of ground, not a part of a manufactured home subdivision, providing sites for the parking or location of one or more occupied manufactured homes, travel trailers, recreation vehicles and similar units.

"Manufactured/mobile home subdivision" means a tract of land, laid out in accordance with this subdivision ordinance of the City of El Paso, intended for the specific purpose of providing individual lots for the placement of manufactured/mobile homes.

"Maximum" for the purposes of this title, "the maximum" means the amount that is required by this title of a developer, but a developer may choose to construct or provide less than the maximum unless otherwise specified.

"Median" means a strip of land that separates the opposing flows of traffic on a street, with level or depressed areas within it.

Median, flush. "Flush median" means a median which is level with the surface of the street and created by using header curbing, striping or other approved material.

Median, raised. "Raised median" means a median which is created by using standard curbing.

"Metes and bounds" means a method of describing the boundaries of land by directions and distances from a known point of reference.

"Minimum" for the purposes of this title, "the minimum" is the amount that is required of a developer, but a developer may choose to construct or provide additionally above the minimum required unless otherwise specified.

Minor Plat. See "Plat, Minor."

"Mobile home" as defined in the zoning ordinance, means a structure constructed before 1976 and regulated by the Texas Department of Housing and Community Affairs.

"Modification" means the making of a limited change, either required by ordinance or voluntary by the applicant, in a plat submission or set of subdivision improvement plans.

"Municipal utility district (MUD)" means a political subdivision of the State of Texas authorized by the Texas Commission of Environmental Quality (TCEQ) to provide water, sewage, drainage and other services within the MUD boundaries.

"Occupancy" means any utilization of real property.

"Official submittal date" means the date an applicant delivers the application or plan to the city or deposits the application or plan with the United States Postal Service by certified mail addressed to the city with all required fees and documents as stated on the application form, as de-

scribed by Section 19.37.040 of this subdivision ordinance. The official submittal date is also subject to complete application provisions within this title; see the definition of complete application as well as requirements within Section 19.37.020 of this title.

"Off-site" means any premises not located within the area of the property to be subdivided, whether or not in common ownership with the applicant for subdivision approval.

"Open space" as defined in the zoning ordinance and further defined as an area that is intended to provide light and air and is designed for either scenic or recreational purposes. Open space may mean and include, but is not limited to, lawns, decorative planting, desert areas, foothills, walkways, active and passive recreation areas, playgrounds, fountains, river banks, swimming pools, wooded areas and water courses. Open space shall not include driveways, parking lots or other surfaces designed or intended for vehicular travel or storage.

Open space, common. "Common open space" means a parcel or parcels of land, or an area of water in combination with land, within a site designed and intended for the use and enjoyment of residents and owners belonging to an association as defined herein. Common open space may contain such complementary structures and improvements as are necessary and appropriate for the benefit and enjoyment of residents and owners belonging to an association. Also may be referred to as common area. Also see the zoning ordinance.

Open space, private. "Private open space" as defined in the zoning ordinance, means an area that is intended to provide light and air and is designed for either scenic or recreational purposes. Open space may include, but is not limited to, lawns, decorative planting, desert areas, foothills, walkways, active and passive recreation areas, playgrounds, fountains, river banks, swimming pools, wooded areas and water courses. Open space shall not include driveways, parking lots or other surfaces designed or intended for vehicular travel or storage.

Open space, public. "Public open space" as defined in the zoning ordinance, means the land dedicated to and accepted by the City of El Paso that is specifically designated as open area to remain undisturbed in its natural state.

"Open space ratio/percentage" means the square foot amount of open space for each square foot of floor area within lot boundaries. This may be expressed as a percentage of open space within lot boundaries.

Open space, usable. "Usable open space" means an open area or recreational facility that is designed and intended to be used for outdoor, active or passive, recreation purposes. An area of usable open space has a slope that does not exceed ten percent, and no dimension of less than ten feet. An area of usable open space may also include landscaping elements (e.g., trees, ground cover), trails, recreational facilities, water features and decorative objects such as art or fountains.

"Owner" means the legal or beneficial owner of a site, including, but not limited to, a mortgagee or vendee in possession, receiver, executor, trustee, lessee or other person, firm or corporation in control of the site.

"Parcel" means a contiguous tract of land owned by or recorded as the property of the same person(s) or controlled by a single entity.

"Park and/or playground" means a publicly- or privately-operated recreation facility, including any land area, which is designed to serve the recreation needs of El Paso citizens and visitors. Such park or playground may be private, used for the exclusive use of private residents or neighborhood groups and their guests and not for use by the general public. Such park or playground may be public, used by the general public without membership or affiliation.

"Park zone" means the residential areas surrounding a proposed or existing park or other recreational facility that can reasonably derive benefit from that park or other recreational facility pursuant to the El Paso Comprehensive Park and Open Space Plan. The city has divided its corporate limits into one square mile park zones which

shall be used for acquisition or development of parkland or other recreational facilities; where credit may be applied as part of an off-site dedication of parkland or other recreational facilities; or where bonus reductions for recreational improvements to parkland or other recreational facilities may be given.

"Parking area" or "parking lot" as defined in the zoning ordinance, means an area, not including a street or alley right-of-way, containing one or more parking spaces for motor vehicles, designed in accordance with the requirements of Chapter 20.14, and intended as an accommodation for patrons, customers, and employees, either with or without a charge for such accommodation.

Parking space, off-street. "Off-street parking space" as defined in the zoning ordinance, means an area, not including a street or alley right-of-way, permanently reserved for the temporary storage of one motor vehicle, meeting all of the requirements of Chapter 20.14.

"Parkway" as defined in the zoning ordinance, means that area of street right-of-way between the property line and the curb or, in the absence of a curb, between the property line and the nearest edge of the street paving.

"Pedestrian way" means a specifically designated place, path, means, or way by which pedestrians shall be provided safe, adequate and usable circulation through the interior of a property or development and outside any portion of an accessway.

Performance guarantee. See "Security."

"Permit" means the written governmental permission required for undertaking any land development activity issued by an authorized official, empowering the holder thereof to do some act not forbidden by law, but not allowed without such permission.

Permit, borrow or waste. "Borrow or waste permit" as defined and governed in Title 18, Grading, of this code.

Permit, clearing and access. "Clearing and access permit" as defined and governed in Title 18, Grading, of this code.

Permit, final grading. "Final grading permit" as defined and governed in Title 18, Grading, of this code.

Permit, prefinal grading. "Prefinal grading permit" as defined and governed in Title 18, Grading, of this code.

Permit, site preparation. "Site preparation permit" means any permit or series of permits issued under Title 18 and/or this title, that authorizes site preparatory activities other than construction or placement of a structure on the land under one or more site plans and that, upon approval, authorizes the property owner to apply for a construction permit.

"Person" means a human being, his heirs, executors, administrators, or assigns and also includes a firm, partnership, corporation or other legal entity authorized by law, its or their successors or assigns, or the agent of any of the aforesaid.

"Petition for relief from dedication or construction requirement" means a request for relief from a requirement imposed under this title to dedicate or construct a public improvement based on constitutional standards, and that is reviewed and decided under this title, Chapter 19.46.

Plan, drainage shed control. "Drainage shed control plan" means a conceptual plan for the development of stormwater infrastructure as provided for in Chapter 19.19 of this title.

Plan, master grading. "Master grading plan" means a conceptual plan which shows the proposed phased grading and its effect on adjacent properties.

Plan, temporary and permanent erosion control. "Temporary and permanent erosion control plan" means a plan which shows erosion control measures proposed for the period before and after improvements are completed.

"Planning official" means the planning official as defined in Chapter 1.04 of this Code. He is responsible to coordinate the subdivision review process, gather all staff comments and recommendations and convey such recommendations to the

city plan commission and city council. The planning official is also authorized under this title to approve certain plats.

Plans, subdivision improvement. "Subdivision improvement plans" means the plans required by the city for the construction and installation of public improvements necessary to provide required services for proper development; including, but not limited to, plans for grading, drainage facilities, water and sewer, open space, parks or other recreational space, streets and illumination of streets. See also Construction Plans.

"Plat" means a map, drawing or plan showing the exact layout and proposed construction of a proposed development into one or more lots, blocks, streets, parks, school sites, commercial or industrial sites, easements, alleys and/or any other elements as required by this title and which a subdivider shall submit for approval in accordance with this title.

Plat, amending. "Amending plat" means a plat with minor changes to a recorded subdivision as itemized and authorized in Section 19.07.040 of this title.

Plat, development. "Development plat" means a plat required prior to development in accordance with Texas Local Government Code, Chapter 212.045 in lieu of other plats required by this title in accordance with Chapter 19.05.

Plat, final. "Final plat" means the plat of a subdivision for which platting is required which, when authorized, submitted and approved as regulated by this title, Chapter 19.04, will be recorded in the official public records. Such plat is a final plat submitted under state statute and is subject to the thirty-day approval limitation. A combination plat comprised of the preliminary and final plats, as authorized and approved under this title, shall also constitute a final plat.

Plat, minor. "Minor plat" means a plat dividing land into no more than four lots that meets the submission and approval requirements of Chapter 19.06 of this title. Such plat is considered the final plat submitted under state statute and is subject to the thirty-day approval limitation.

Plat, preliminary. "Preliminary plat" means a plat that illustrates and thereby assures the general layout of a proposed subdivision, the adequacy of public facilities needed to serve the proposed subdivision, and the overall compliance of the applicable requirements of this title and that is reviewed and decided prior to approval of a final plat. This type of plat is authorized under Chapter 19.03 of this title.

Plat, recorded. "Recorded plat" means a plat that has received all approvals required by this title and has been filed with the county clerk of the County of El Paso. Recording of a plat creates buildable lots with legal descriptions and dedicates rights-of-way and easements to the use of the public.

Plat, vacated. "Vacated plat" means a subdivision which is vacated through the procedures described in this title and is made legally void.

"Plaza" means an open space available for civic purposes and commercial activities. A plaza shall be spatially defined by building frontages. Its landscape shall consist primarily of hard surface, such as pavement, concrete, stamped concrete or brick pavers. Trees are optional. Plazas should be located at the intersection of important streets. The minimum size shall be one-fourth acre and the maximum shall be two acres.

"Pocket park" means an open space used for active or passive recreation, usually less than one acre.

Pond, amenitized detention/retention. "Amenitized detention/retention pond" means an area that is designed to capture, store and release stormwater and that is designed as a site amenity by being aesthetically pleasing, by providing recreational or aesthetic value, and by being constructed to seem natural (i.e., without visible concrete). Such areas have a natural edge and are designed to resemble a naturally created lake or pond. Also refer to the definition of amenity above.

Pond, detention. "Detention pond" means a man-made or natural reservoir, either public or private, designed to restrict the flow of stormwater to a prescribed maximum rate through a con-

trolled release by gravity, and to concurrently detain the excess waters that accumulate behind the control structure. Further defined within the City of El Paso Street Design Manual (SDM).

Pond, retention. "Retention pond" means a man-made or natural reservoir, either public or private, designed to completely retain a specified amount of stormwater runoff without gravity release. Further defined within the City of El Paso Street Design Manual (SDM).

Ponding, on-site. "On-site ponding" means the process of containing surface water runoff within individual lots.

Preliminary plat. See "Plat, Preliminary."

"Project" means a land development project.

"Property line" as defined in the zoning ordinance, means the official boundary of a parcel, lot, or tract of land as designated by either a metes and bounds description or recorded subdivision plat filed in the records and maps of the county clerk.

"Property owner" means the person(s) with legal title to the property, whether or not the person is in possession of the property.

"Proportional share" means the developer's portion of the costs of an exaction or public improvement as determined and in accordance with Texas Local Government Code 212.904 and considered to be the "roughly proportional share" of such exaction or public improvement that is created by a proposed development or subdivision.

"Public facility" means any public improvement providing required services for proper development, including, but not limited to, streets, bridges, public buildings, public works buildings or facilities, water systems, sanitary and storm sewerage systems, sanitary landfills, retention dams or basins and community facilities, such as parks, fire stations, libraries, schools, and health clinics.

"Public improvement district (PID)" means an assessment district set up under state law and the authority of the city to finance certain public improvements with assessments on property within the district, based on the benefit to the individual properties.

Public right-of-way. See "Right-of-way, Public."

"Public utility" as defined in the zoning ordinance, means a closely regulated enterprise existing under the provisions of chapter 402 of the Texas Local Government Code or of title 32, chapter 10 of the Texas Revised Civil Statutes, which provides to the public a utility service deemed necessary for the public health, safety and general welfare. For purposes of this title, a municipality owning or operating a public utility system or an entity with a franchise with the city or the state to provide a public utility system shall be considered a public utility.

"Public utility facility" as defined in the zoning ordinance, means the buildings, structures and facilities relating to the furnishing of public utility services to the public.

"Public utility service" as defined in the zoning ordinance, means a service essential to the health, safety and general welfare of the public, such as the generation, transmission and/or distribution of electricity, gas, steam, communications, and water; the collection and treatment of sewage and solid waste; the collection, storage or diversion of surface waters from land; and the provision of mass transportation.

Record drawings. See "As-Built/Record Drawings."

"Recording" means the act of processing a subdivision plat, which has been approved by the city as required by this title, as an official record in the deeds and records section of the office of the county clerk.

"Remainder tract" means land that is part of a larger parcel that is not subject to a subdivision plat affecting the parcel.

"Replat" means to resubdivide all or any part of a recorded subdivision, that is beyond the definition of an amending subdivision and which does not require the vacation of the entire preceding plat.

"Residential use" means the use of land by a dwelling unit or group of dwelling units.

"Responsible official" means the city staff person who has been designated by the city manager to accept a type of development application for filing, to review and make recommendations concerning such applications, and where authorized, to initially decide such applications, to initiate enforcement actions, and to take all other actions necessary for administration of the provisions of this title with respect to such development applications. Also includes any designee of the designated city staff person.

Resubdivision. See "Replat."

"Right-of-way" ("ROW") means property that is publicly owned or upon which a governmental entity has an express or implied property interest (e.g. fee title, easement, etc.) held for a public purpose. Examples of such public purpose include, by way of example and not limitation, highways, streets, sidewalks, drainage facilities, sewerage and water facilities.

"Roadway" means the paved area of a street between the face of the curb lines including the driving and parking lanes which is provided for the movement of vehicles.

Roadway, centerline. See "Centerline."

Route, accessible. "Accessible route" means a continuous unobstructed path connecting all accessible elements and spaces of a building, facility or site.

"Screening" as defined in the zoning ordinance, means a hedge, earth berm, wall or fence constructed in accordance with the requirements of the ordinance codified herein to provide a visual separator or physical barrier.

"Screening wall" means a solid vertical barrier constructed of masonry materials that is intended to separate and limit visibility between that which is on either side of the barrier, for example adjacent land uses or particular site elements.

"Security" means a surety instrument or other financial mechanism to guarantee performance of an act or construction of required improvements in accordance with Section 19.08.040, and in an amount and form satisfactory to the city plan commission, the city council or the county commissioner's court as applicable.

"Setback line" also referred to as "setback." As defined in the zoning ordinance, means the distance between a structure and the nearest lot line.

Sewage. See "Wastewater."

"Shopping center" as defined in the zoning ordinance and further defined as a commercial development such as a strip center, mall, or multitenant retail building, in which two or more separate retail businesses occupy a single or multiple structures which share on-site parking and common driveways.

"Sidewalk" means a hard surface area other than a roadway, used for the movement of pedestrians.

"Site" means a tract of property that is the subject of a development application.

"Site development plan" means the final step of the development process within a zoning district, if required by the zoning or this title.

"Site plan" means a scaled and detailed drawing that conforms to the requirements of this title, and that shows the roads, parking, footprints of all buildings, existing trees, proposed landscaping, parkland, open space, grading and drainage, and similar features needed to verify compliance with the city's approved comprehensive plan and development standards.

Site preparation permit. See "Permit, Site Preparation."

"Square" means an open space available for unstructured recreation and civic purposes. A square is spatially defined by building frontages. Its landscape shall consist of paths, lawns and trees, formally disposed. Squares shall be located at the intersection of important thoroughfares. The minimum size shall be one-half acre and the maximum shall be five acres.

"Stormwater" means the surface drainage runoff or flow created from any form of precipitation accumulation including rain, snow, sleet and/or hail that exceeds the interception by vegetation and infiltration into the soil. The following defini-

tions are applicable to the management of stormwater and apply to any stormwater requirement contained in this title, in Chapter 19.19, stormwater or in the SDM. All other definitions shall be in accordance with Article 6.

1. Applicant: A person submitting a post-development stormwater management application and plan for approval.

2. Channel: A natural or artificial watercourse with a definite bed and banks that conducts continuously or periodically flowing water.

3. Drainage design manual (DDS): The detailed specifications, procedures and standards approved by resolution of the city council for the purpose of regulating the design and construction of specified stormwater and drainage improvements.

4. Flooding: A general and temporary condition of partial or complete inundation of normally dry land areas from:

a. The overflow of inland or tidal waters;

b. The unusual and rapid accumulation or runoff of surface waters from any source.

5. Floodplain manager: The Texas licensed professional engineer designated by the city manager as the responsible official and initial decision-maker to administer and implement the provisions of Chapter 18.60 of this code and other appropriate Sections of 44 CFR (National Flood Insurance Program regulations) pertaining to floodplain management.

6. Inspection and maintenance agreement: A written agreement providing for the long-term inspection and maintenance of storm water management facilities and practices on a site or with respect to a land development project, which when properly recorded in the deed records constitutes a restriction to a site or other land involved in a land development project.

7. Non-point source pollution: A form of water pollution that does not originate from a discrete point such as a sewage treatment plant or industrial discharge, but involves the transport of pollutants such as sediment, fertilizers, pesticides, heavy metals, oil, grease, bacteria, organic materials and other contaminants from land to surface water and groundwater via mechanisms such as precipitation, stormwater runoff, and leaching. Non-point source pollution is a by-product of land use practices such as agricultural, mining, construction, subsurface disposal and urban runoff sources.

8. Nonstructural stormwater management practice or nonstructural practice: Any natural or planted vegetation or other nonstructural component of the stormwater management plan that provides for or enhances stormwater quantity and/or quality control or other stormwater management benefits, and includes, but is not limited to, riparian buffers, open and greenspace areas, overland flow filtration areas, natural depressions, and vegetated channels.

9. Post-development: The time period, or the conditions that may reasonably be expected or anticipated to exist, after completion of the land development activity on a site as the context may require.

10. Pre-development: The time period, or the conditions that exist, on a site prior to the commencement of a land development project and at the time that plans for the land development of a site are approved by the plan approving authority. Where phased development or plan approval occurs (preliminary grading, roads and utilities, etc.), the existing conditions at the time prior to the first item being approved or permitted shall establish pre-development conditions.

11. Redevelopment: A land development project on a previously developed site, but excludes ordinary maintenance activities, remodeling of existing buildings, resurfacing of paved areas, and exterior changes or improvements which do not materially increase or concentrate stormwater runoff, or cause additional non-point source pollution.

12. Runoff: Stormwater runoff.

13. Site: The parcel of land being developed, or the portion thereof on which the land development project is located.

14. Stormwater management: The collection, conveyance, storage, treatment and disposal of stormwater runoff in a manner intended to prevent increased flood damage, stream bank channel erosion, habitat degradation and water quality degradation, and to enhance and promote the public health, safety and general welfare.

15. Stormwater administrator: The person designated by the city manager to be the responsible official and initial decision maker for applications pertaining to drainage plans and other drainage decisions as may be required in Title 18, Building and Construction and Chapter 19.19, Storm Water Management Requirements.

16. Stormwater management facility: Any infrastructure that controls or conveys stormwater runoff.

17. Stormwater management measure: Any stormwater management facility or nonstructural stormwater practice.

18. Stormwater management plan: A document describing how existing runoff characteristics will be affected by a land development project and containing measures for complying with the provisions of this title.

19. Stormwater management system: The entire set of structural and nonstructural stormwater management facilities and practices that are used to capture, convey and control the quantity and quality of the stormwater runoff from a site.

20. Stormwater runoff: The flow of surface water resulting from precipitation.

21. Structural stormwater control: A structural stormwater management facility or device that controls stormwater runoff and changes the characteristics of that runoff including, but not limited to, the quantity and quality, the period of release or the velocity of flow of such runoff.

"Stormwater open space" means a natural open area to be used to help manage storm water, reduce flooding risk and improve water quality as its primary purposes, while still permitting passive recreational use of the open space as secondary purposes to the area. Water, waste water, and stormwater utility systems within areas designated for stormwater open space shall be designed with environmentally sensitive infrastructure and constructed with a low impact development (LID) approach to the extent permitted in the city's subdivision regulations. Any area designated as stormwater open space shall require the approval of the floodplain administrator, shall conform to the master stormwater management plan and open space master plan of the city, and shall be shown within the boundaries of any required land study, subdivision plat, detailed site development plan, master zoning plan, SmartCode regulating plan, or any other platting or zoning document as may be required by the city.

"Street" means the entire width between property lines when any part thereof is open to the use of the public, as a matter of right, for the purpose of vehicular traffic. This definition shall include public as well as private streets. An "Alley" is not considered to be a street, and is separately defined herein.

1. Street, Arterial. A street designed to accommodate cross-city traffic movement, distributing traffic to and from collector streets, as indicated by the El Paso Comprehensive Plan or any individual element thereof.

2. Street, boulevard. A street, similar to an arterial and designed to accommodate cross-city traffic movement, distributing traffic to and from collector streets, as indicated by the El Paso Comprehensive Plan or any individual element thereof. A boulevard, however, is designed with marginal access roads and medians and parkways which are landscaped to provide a more aesthetic streetscape.

3. Street, collector. A street designed to collect traffic from local streets (i.e., subcollector and local) and connect with arterial streets and freeways, as indicated by the El Paso Comprehensive Plan or any individual element thereof.

4. Street, freeway. An access controlled, high speed street designed to accommodate cross-country and/or limited cross-city traffic movement, with grade separation at major intersections, as indicated by the El Paso Comprehensive Plan or any individual element thereof.

5. Street, local. A street designed exclusively to provide direct access to abutting property.

6. Street, subcollector. A street designed, generally, to accommodate traffic movement from local streets to higher classifications of streets as well as provide direct access to activity on abutting lots. Specifically, a subcollector is any street or portion thereof designed exclusively to provide direct access to property within nonresidential zoning districts, any street or portion thereof providing the shortest direct route to a collector street for twenty-five or more dwelling units, or any street segment extending without offset and connecting two or more collector streets.

Street centerline. See "Centerline."

"Street Design Manual" and/or "(SDM)" means Appendix 113 of Title 19 of the El Paso City Code. The Street Design Manual is the detailed specifications, procedures and standards approved for the purpose of regulating the design and construction of specified improvements.

Street, private. "Private street" as defined in the zoning ordinance, means a privately owned accessway within an approved planned development for which the private owners assume full responsibility for maintenance and control and which has not been dedicated to the use of the public.

Street, public. "Public street" as defined in the zoning ordinance, means an accessway dedicated to the use of the public which has been accepted for maintenance and control by the city, county or state.

Street, stub. "Stub street" means a street that has been designed to allow for the future extension of the street through subsequent subdivisions.

Street, substandard. "Substandard street" means an existing street that does not meet the current minimum street standards of the city.

"Structure" as defined in the zoning ordinance, means that which is built or constructed, an edifice or building of any kind or other artificially built or constructed work.

"Subdivide" means when the owner of a tract of land within the limits or in the extraterritorial jurisdiction divides the tract into two or more parts to lay out a subdivision of the tract, including an addition to a municipality, to lay out suburban, building or other lots, or to lay out streets, alleys, squares, parks or other parts of the tract intended to be dedicated to public use or for the use of purchasers or owners of lots fronting on or adjacent to the streets, alleys, squares, parks or other parts. A division of a tract under this definition includes a division regardless of whether it is made by using a metes and bounds description in a deed of conveyance or in a contract for a deed, by using a contract of sale or other executory contract to convey or by using any other method.

1. This does not include a division of land into parts greater than five acres, where each part has access and no public improvement is being dedicated.

2. This does include the assembly of two or more tracts of land into one tract or lot, unless specifically authorized by this title.

3. It also includes the following changes to a recorded plat, unless specifically authorized by this title:

a. A resubdivision of all or part of the subdivision;

b. Any change of lot size or lot lines; or

c. The relocation of any street.

"Subdivider" means any person or any agent of the person, who either directly or indirectly, divides or proposes to divide land, so as to constitute a subdivision, as that term is defined in this title. In any event, the term "subdivider" is restricted to include only the owner, equitable owner or authorized agent of the owner or equitable owner of land to be subdivided. The term "developer" shall also mean subdivider when the context of such use relates to a subdivision or other division of land.

"Subdivision" pertaining to land for which a plat has been recorded, subdivision means an area of subdivided lots; pertaining to the act of subdividing land, see the definition of subdivide herein.

Subdivision, cluster. "Cluster subdivision" means a grouping of individual building lots or

sites in close proximity, each of which or the majority of which has less land area than required for isolated individual lots, with the additional area in the cluster subdivision being devoted to open space, recreation space, car spaces and access facilities in addition to required yards.

Subdivision Improvement Design Standards. See "Design Standards for Construction, El Paso (DSC)."

Subdivision improvement plans. See "Plans, Subdivision Improvement."

"Submission" means the process by which a person desiring approval of a subdivision plat or subdivision improvement plans makes application to the city manager, the planning official, or their designee, which application meets all of the submission requirements.

"Surveyor" means a registered professional land surveyor, as licensed by the State of Texas.

"TAC" means the acronym for the Texas Administrative Code.

"TCEQ" means the acronym for the Texas Commission on Environmental Quality.

Thoroughfare, Major. See "Street, Arterial."

"Thoroughfare Plan" means the thoroughfare plan element of the comprehensive plan including the "2025 Thoroughfare System Map" as amended, and all other adopted thoroughfare plans of the City of El Paso.

Traffic, average daily (ADT). "Average daily traffic (ADT)" means the average number of vehicles that pass a specified point during a twenty-four hour period.

"Traffic impact analysis or study (TIA)" means a report analyzing current and future traffic movements with and without a subdivision's impact and which includes an analysis of mitigation measures.

"Trips" means the total number of vehicles, bicycles and pedestrians that pass a specified point during a specified time period.

Trips, average daily. "Average daily trips" means the average number of trips that pass a specified point during a twenty-four hour period.

Trips, peak hour. "Peak hour trips" means the total number of trips passing a specified point during the peak hour. The peak hour is the hour during the specified AM or PM period with the highest recorded traffic volumes on the impacted roadway network.

"TXDOT" means the acronym for the Texas Department of Transportation.

"Utility" means a business that provides an essential commodity or service, such as electric, gas transmission, and local telephone, and that is generally under government regulations.

"Utility green space" means an area of protected or conserved land, larger than ten acres, where development is limited or controlled to preserve the area as undisturbed open space as its primary purpose, while still permitting passive recreational uses and necessary water, waste water and stormwater utility systems as secondary purposes to the area. Utility green space shall be shown within the boundaries of any required land study, subdivision plat, detailed site development plan, master zoning plan, SmartCode regulating plan, or any other platting or zoning document as may be required by the city.

"Utility manager" means the Public Service Board of the El Paso Water Utilities or their designated representative that will furnish engineering assistance, approval of utility construction drawings, inspection and acceptance of water and wastewater improvements in the administration of this title.

Utility, public. See "Public Utility."

"Variance" for the purposes of this title, a variance means a procedure defined under the replatting standards contained in Chapter 212 of the Texas Local Government Code.

"Vested right" means a right of an applicant in accordance with Chapter 245 of the Texas Local Government Code, as amended, requiring the city to review and decide the application under standards in effect prior to the effective date of the standards of this title and/or of any subsequent amendments.

"Vested rights petition" means a request for relief from one or more standards of this title based on an assertion that the petitioner has acquired a vested right requiring the city to review and decide the application under standards in effect prior to the effective date of the standards of this title. Such petition is regulated under Title 1, Section 1.04.070.

"Violation" means the failure of a development to fully comply with this article.

"Waiver" means authorization to deviate from or vary one or more standards applicable to a development application; such authorization is applied for, reviewed, and decided under this title, Chapter 19.48. Also, see Exception.

Waiver of rights. Still being defined by attorney.

"Wastewater" means water which has been used for domestic, commercial or industrial purposes and has acquired contaminants which must be removed by wastewater treatment processes prior to release in the environment or reuse as treated wastewater or effluent.

Wastewater disposal system, on-site. "On-site wastewater disposal system" means one or more systems of treatment devices and disposal facilities that are used only for disposal of wastewater produced on the site where the system is located.

"Wastewater facilities" means the devices and systems which transport domestic wastewater from any property, treat the wastewater, or dispose of the treated wastewater in accordance with the minimum state standards.

Wastewater facility, on-site. "On-site wastewater facility" means an on-site sewage disposal system.

Wastewater system, public. "Public wastewater system" means a facility owned and operated by a legal entity created under the State of Texas, with authority and responsibility to construct, operate and maintain a wastewater disposal system.

"Water department" means El Paso Water Utilities.

Water, drinking or potable. "Drinking or potable water" means all water distributed by any agency or individual, public or private, for the purpose of human consumption or which may be used in preparation of foods or beverages, or for the cleaning of any utensil or article used in the course of preparation or consumption of food for human beings.

Water system, nonpublic. "Nonpublic water system" means any water system supplying potable water which is not a public water system.

Water system, public. "Public water system" means a facility owned and operated by a legal entity created under the laws of the State of Texas, with authority and responsibility to construct, operate and maintain a potable water system. The system must provide piped water for human consumption and for all uses described under the definition for drinking water to the public. Such system must have a potential for at least fifteen service connections or serve at least twenty-five individuals at least sixty days out of the year. This term includes any collection, treatment, storage and distribution facilities under the control of the operator of such system and used primarily in connection with such system; and any collection or pretreatment storage facilities not under such control which are used primarily in connection with such system. Two or more systems with each having a potential to serve less than fifteen connections or less than twenty-five individuals but owned by the same person, firm, or corporation and located on adjacent land will be considered a public water system when the potential service connections in the combined systems are fifteen or greater of if the total number of individuals served by the combined systems total twenty-five or more at least sixty days out of the year.

"Water storage" means impounded surface water areas or surface tanks used for storage.

"Yard" including front, rear or side; as defined in the zoning ordinance, means that part of a lot at grade between a building and the adjoining lot lines, unoccupied and unobstructed by any portion of a structure from the ground upward to the sky, except for permitted projections from the ground such as landscaping, fencing or walls.

"Zero lot line" as defined in the zoning ordinance, means a property line on which a structure is constructed upon, resulting in no yard on that side.

"Zoning ordinance" means Title 20 of the city code. Definitions referred to in this ordinance are located in Chapter 20.02 of this Code.

(Ord. 16912 § 3, 2008; Ord. 16882 § 2(part), 2008; Ord. No. 17236, §§ 8, 25, 26, 27, 11-10-2009; Ord. No. 17251, § 13, 12-15-2009; Ord. No. 17396, §§ 32—34, 8-24-2010; Ord. No. 17517, § 2, 3-29-2011; Ord. No. 17528, § 2, 4-12-2011; Ord. No. 17539, § 2, 4-19-2011; Ord. No. 17905, § 3, 11-6-2012; Ord. No. 19327, §§ 47—52, 4-26-2022)

Article 7. Fees

Chapter 19.60

Fees for Services

Sections:

19.60.010 Authorized fees.

19.60.010 Authorized fees.

The city department charged with administering this Title 19 is authorized to charge fees for all services provided under this Title 19 including but not limited to fees for any review of plans, review of documents, inspections, application review, application processing, and permit issuance. All fees shall be in the amount authorized by city council in the annual budget resolution adopted by city council.

(Ord. No. 19078, § 1, 8-4-2020)

Article 8. Conflict of Laws

19.65

Conflict of Laws

Sections:

19.65.010 Conflict of laws.

19.65.010 Conflict of laws.

In the event that any portion of Title 19 (Subdivision and Development Plats) conflicts with V.T.C.A., Local Government Code Ch. 212, the conflicting portion of Title 19 shall be replaced with the prevailing portion of V.T.C.A., Local Government Code Ch. 212, as may be amended.

(Ord. No. 019535, § 1, 8-29-2023)

APPENDIX 111 MOUNTAIN AREA DEFINED

Property located within the area described as follows shall be within the mountain development area:

Beginning at a point common to Sections 3, 4 and 7, Block 81, Tsp. 2, T & P RR Co. Surveys, and the northwest corner of Park Foothills Unit Six Subdivision;

Thence, southerly along the east line of Section 7, Block 81, Tsp. 2, T & P RR Co. Surveys a distance of 3,330 more or less to the north right-of-way line of Zircon Drive;

Thence, west along the north right-of-way line of Zircon Drive a distance of 1,450 feet more or less to the west right-of-way line of Mountain View Drive;

Thence, south along the west right-of-way line of Mountain View Drive a distance of 1,170 more or less to the north line of High Point Unit One Subdivision;

Thence, westerly and southerly along the boundary of High Point Unit One to the North boundary of Lot 20, Block 3, Park North Unit Four;

Thence, westerly, northerly, westerly, southerly, westerly and southerly direction of Park North Unit Four, Unit Two and Unit Three to the southwest corner of Lot 2, Block 4, Park North Unit Three;

Thence, southeasterly along the westernmost survey line of Tracts 2H and 14L, Section 14, Block 81, Tsp. 2, T & P RR Co. Surveys to a point, said point being the northeast corner of Tract 6, Section 14, Block 81, Tsp. 2, T & P RR Co. Surveys;

Thence, southerly along the eastern boundary of Tract 6, Section 14, Block 81, Tsp. 2, T & P RR Co. Surveys to a point, said point being the southeast corner of Tract 6, Section 14, Block 81, Tsp. 2, T & P RR Co. Surveys;

Thence, westerly along the south line of Tract 6, Section 14, Block 81, Tsp. 2, T & P RR Co. Surveys to a point, said point being the westernmost corner of Tract 14M, Section 14, Block 81, Tsp. 2, T & P RR Co. Surveys;

Thence, southerly along the west boundary of Tract 14M, Section 14, Block 81, Tsp. 2, T & P RR Co. Surveys to a point, said point being the southwestern corner of said tract;

Thence, easterly along the southern boundary of Tract 14M, Section 14, Block 81, Tsp. 2, T & P RR Co. Surveys to a point, said point being the northwestern corner of tract 14M, Section 14, Block 81, Tsp. 2, T & P RR Co. Surveys;

Thence, southerly along the western tract line of Tract 14M, Section 14, Block 81, Tsp. 2, T & P RR Co. Surveys to a point, said point being the Southwestern corner of said tract;

Thence, in an easterly direction along the southern survey line of Tracts 14M and 14N, Section 14, Block 81, Tsp. 2, T & P RR Co. Surveys, respectively, to a point of intersection with the western boundary of Mountain Park Subdivision;

Thence, southeasterly along the west boundary line of Mountain Park Subdivision to a point on the south right-of-way line of Bandelier Drive;

Thence, easterly along the said right-of-way line to a point of intersection with the west right-of-way line of Big Bend Drive;

Thence, southeasterly along the aforementioned drive to a point marking the northwestern corner of Lot 10, Block 2, Replat "A," Unit One, Mountainside Subdivision;

Thence, southwesterly, northwesterly, southerly, southeasterly and southerly along Lot 10 and 11, Block 2, Mountainside Unit One, Replat "A" to the southerly right-of-way line of Stoney Hill Drive;

Thence, easterly along the south line of Lot 1, Block 3, of said Mountainside Unit One Replat "A" to the northwest corner of Lot 75, Block 1, Mountain Ridge Estates Subdivision;

Thence, southerly along the westerly line of Lot 75, 44 to 29 and Lot 76, Block 1, Mountain Ridge Estates Subdivision to the southwest corner of said aforementioned Lot 76;

Thence, easterly along the common boundary of Mountain Ridge Estates Subdivision and the north line of Section 15, Block 81, Tsp. 2, T & P RR Co. Surveys to a point of intersection with the west right-of-way line of Alabama Drive;
Thence, southerly along the westerly right-of-way line of Alabama Drive to the north line of Tract 8, Section 15, Block 81, Tsp. 2, Texas and Pacific Railway Surveys;
Thence, westerly, southerly, easterly, southeasterly and northeasterly along Tracts 8, 1B and 9, Section 15, Block 81, Tsp. 2, Texas and Pacific Railway Surveys, to the westerly boundary of Vista de los Huecos Subdivision;
Thence, south, east and north along the perimeter of Vista de los Huecos Subdivision to the westerly right-of-way line of Alabama Drive;
Thence, continuing southerly along the westerly right-of-way line of Alabama Drive to the southeast corner of Block 92A, Hollywood Heights Addition;
Thence, west, south and east along a common line to the following: the vacated portion of Thomason Avenue and Block 92A, Justus Avenue and Blocks 91B, 91A, 90B, 90A, and of McConnell Avenue and Block 90A, of Hollywood Heights Addition to the westerly right-of-way line of Alabama Drive;
Thence, southerly along the meandering westerly right-of-way line of Alabama Drive to a point, said point being the southeast corner of Tract 2D, Section 22, Block 81, Tsp. 2, T & P RR Co. Surveys;
Thence, northerly along the eastern tract line of Tract 2D, Section 22, Block 81, Tsp. 2, T & P RR Co. Surveys to a point of intersection with the north survey line of Section 22, Block 81, Tsp. 2, T & P RR Co. Surveys, said point also being the northeast corner of Tract 2D;
Thence, westerly along the northern tract line of said tract to a point, said point being the northwest corner of Tract 2D, Section 22, Block 81, Tsp. 2, T & P RR Co. Surveys;
Thence, southwesterly along the westerly tract line of Tract 2D, Section 22, Block 81, Tsp. 2, T & P RR Co. Surveys to the southwest corner of said tract;
Thence, continuing in a southwesterly direction, traversing Tract 2E4, Section 22, Block 81, Tsp. 2, T & P RR Co. Surveys and McKelligon Canyon Road to a point on the south right-of-way line of Davis-Seamon Road, said point also being the northernmost corner of Tract 1B1, Section 22, Block 81, Tsp. 2, T & P RR Co. Surveys;
Thence, northwesterly along the south right-of-way line of Davis-Seamon Road to a point of intersection with the west survey line of Section 22, Block 81, Tsp. 2, T & P RR Co. Surveys;
Thence, southerly along the west survey line of said section to a point, said point being the common corner of the southeast and northeast corners of Tracts 1 and 2, respectively, of the Eli Nations Survey No. 271;
Thence, westerly along a line common to Tracts 1 and 2, Eli Nations Survey No. 271; a distance of 814.40 feet more or less;
Thence, southerly through Tract 2, Eli Nations Survey No. 271, a distance of 3,709.40 to a common point to the southwest corner of Tract 2 and the northwest corner of Tract 3, Eli Nations Survey No. 271;
Thence, southeasterly a distance of 1,120.50 feet more or less to the southwest corner of Tract 11, Section 22, Block 81, Tsp. 2, T & P RR Co. Surveys;
Thence, easterly along the southern boundary line of Tract 11, Section 22, Block 81, Tsp. 2, T & P RR Co. Surveys to a point, said point being the southeast corner of said Tract;
Thence, southerly along the western boundary of Block 7, Rosemont Subdivision Replat to a point of intersection with the southern right-of-way line of McKinley Avenue;
Thence, southeasterly along the southern right-of-way line of McKinley Avenue to a point, said point being the northeastern corner of Block 11, Rosemont Subdivision, and the intersection of McKinley Avenue and the west right-of-way line of Branner Drive;

Thence, in a southerly direction along the western right-of-way line of Branner Drive to a point, said point being the southeast corner of Block 13, Rosemont Subdivision and the intersecting point with the northerly right-of-way line of Nations Avenue;

Thence, easterly along the north right-of-way line of Nations Avenue to the southeast corner of Lot 3, Block 12, Rosemont Addition;

Thence, southwesterly, southerly and easterly across Nations Avenue and the westerly line of lots 11 to 5, and a line common to Lots 46 and 4 to 1, Block 14, Rosemont Addition to the westerly right-of-way line of Nebraska Drive;

Thence, southerly along the western right-of-way line of Nebraska Drive to the north right-of-way line of Fort Boulevard;

Thence, easterly along the north right-of-way line of Fort Boulevard to the western right-of-way line of Oklahoma Street;

Thence, southerly along the west right-of-way line of Oklahoma Street to the southeast corner of Tract IA, Pierce, Allen & Savage Survey No. 64;

Thence, westerly along the southern boundary line of said Tract IA to a point, said point being the southwest corner of said Tract IA;

Thence, in a southern and eastern direction along the boundary lines of Red Rock Canyon Subdivision to a point, said point being the southeastern corner of said subdivision, and the northeast corner of Tract 5, Pierce, Allen & Savage Survey No. 64;

Thence, in a southerly direction along the eastern boundary line of Tract 5, Pierce, Allen and Savage Survey No. 64 to a point, said point being the northwesternmost corner of Mayfield Heights Subdivision;

Thence, southerly along the western boundary of said subdivision to a point common to the northwest and southwest corners of Lots 1 and 2, respectively, of Mayfield Heights Addition;

Thence, North 90º00º00º West a distance of 656.88 feet to a point on the westerly boundary of the Pierce, Allen & Salvage Survey No. 64;

Thence, southerly along the said westerly boundary a distance of 384.75 feet to a point;

Thence, South 90º00º00º East a distance of 553.61 feet to a point on the west on the west boundary line of High Rolls Subdivision;

Thence, southerly and meandering along the western boundary line of High Rolls Subdivision to a point of intersection with the northern right-of-way of Scenic Drive;

Thence, southwesterly along the northern right-of-way line of Scenic Drive to a point of intersection with the extension of the Idaho Street eastern right-of-way line;

Thence, in a southern direction along the Idaho Street eastern right-of-way line to a point, said point being the northwestern corner of Block 29, Highland Park Subdivision;

Thence, in a southwesterly direction to a point, said point being the northwesterly corner of Block 19, Highland Park Subdivision;

Thence, southerly along the east right-of-way line of Colorado Street to the southwest corner of Lot 32, Block 19, Highland Park Addition, same being the north right-of-way line of a 20 foot alley;

Thence, across Colorado Street to the east line of the H. F. Fisher Survey 293, said being 385 feet more or less north of the northeasterly right-of-way line of Murchison Avenue;

Thence, through a portion of Tract 34, H.F. Fisher Survey 293, same being a boundary of Zoning Ordinance No. 6368, southwesterly and southeasterly to the north right-of-way line of Murchison Drive;

Thence, southwesterly and westerly along the aforementioned northerly right-of-way line to the southeast corner of Lot 4, Block II, Unit 7, Richmar Subdivision;

Thence, generally north and northwesterly along Lots 4, 2, 1, Block 11 and a portion of Gurss Place, and the east line of a 10 foot drainage right-of-way to the southeast corner of Lot 16, Block 6, Unit 4, Richmar Subdivision;

Thence, northwesterly along the east line of Lot 16, Block 6, Unit 4, Richmar Subdivision and Tract 14 of H. F. Fisher Survey No. 293 to a point, said point being the northeast corner of Tract 14, H. F. Fisher Survey No. 293;

Thence, westerly along the northern line of Tract 14, H. F. Fisher Survey No. 293 to the northwest corner of same;

Thence, northeasterly along Lots 5 and 4, Block 1, Scenic View Estates Subdivision to the southerly right-of-way line of Scenic Drive;

Thence, northwesterly, meandering along the south right-of-way line of Scenic Drive to a point opposite the southeast corner of Lot 11, Block 1, La Campana Antigua Subdivision;

Thence, northerly across Scenic Drive and southwesterly along the eastern and northern boundary of La Campana Antigua Subdivision to a point, said point being the northwest corner of Lot 3, Block 1, La Campana Antigua Subdivision; same being the northeast right-of-way line of Robinson Avenue;

Thence, northwesterly and southwesterly along the northern right-of-way line of Robinson Avenue to the northerly right-of-way line of Kingery Drive (private street);

Thence, northwesterly along the northerly right-of-way line of Kingery Drive (private street) to a common line to the H.F. Fisher Survey 293 and Los Compadres Subdivision;

Thence, north, northwesterly, southwesterly, northwesterly and southwesterly to a common corner to Lot 4, Block 1, Los Compadres Subdivision; and Lot G, Block 1, Los Compadres Canyon Replat A (Correction Plat);

Thence, southwesterly and northwesterly along the eastline of Lot G, Block 1, Los Compadres Canyon Replat A (Correction Plat) to the southeasterly comer of Block C of open space, Sierra Crest Subdivision;

Thence, northerly and northwesterly along the east boundary of Sierra Crest Subdivision to a point marking the northeast corner of said subdivision and the southern survey boundary line of the Noyes Rand Survey No. 131;

Thence, westerly along the common line of the north line of Sierra Crest Subdivision and the south survey line of the Noyes Rand Survey No. 131 to a point being the northwest corner of Replat B, Sierra Crest Subdivision;

Thence, southeasterly along the zigzag west boundary line of Sierra Crest Subdivision to a point of intersection with the southwesternmost corner of Block F (common open space);

Thence, south 02º25º56º East, a distance of 299.06 feet, along a line extended from the said southwesternmost corner of Block F to the northwesterly corner of Block A (common open space);

Thence, continuing southeasterly along the zigzag west boundary line of Block A, Sierra Crest Subdivision, to a point of intersection with a line bearing south 5 8º 31º West, said line being the northcentral boundary line of the tract of land platted as "City Reservoir Site and Councilmen's Park" between Blocks 104 and 109, Kern Place Addition;

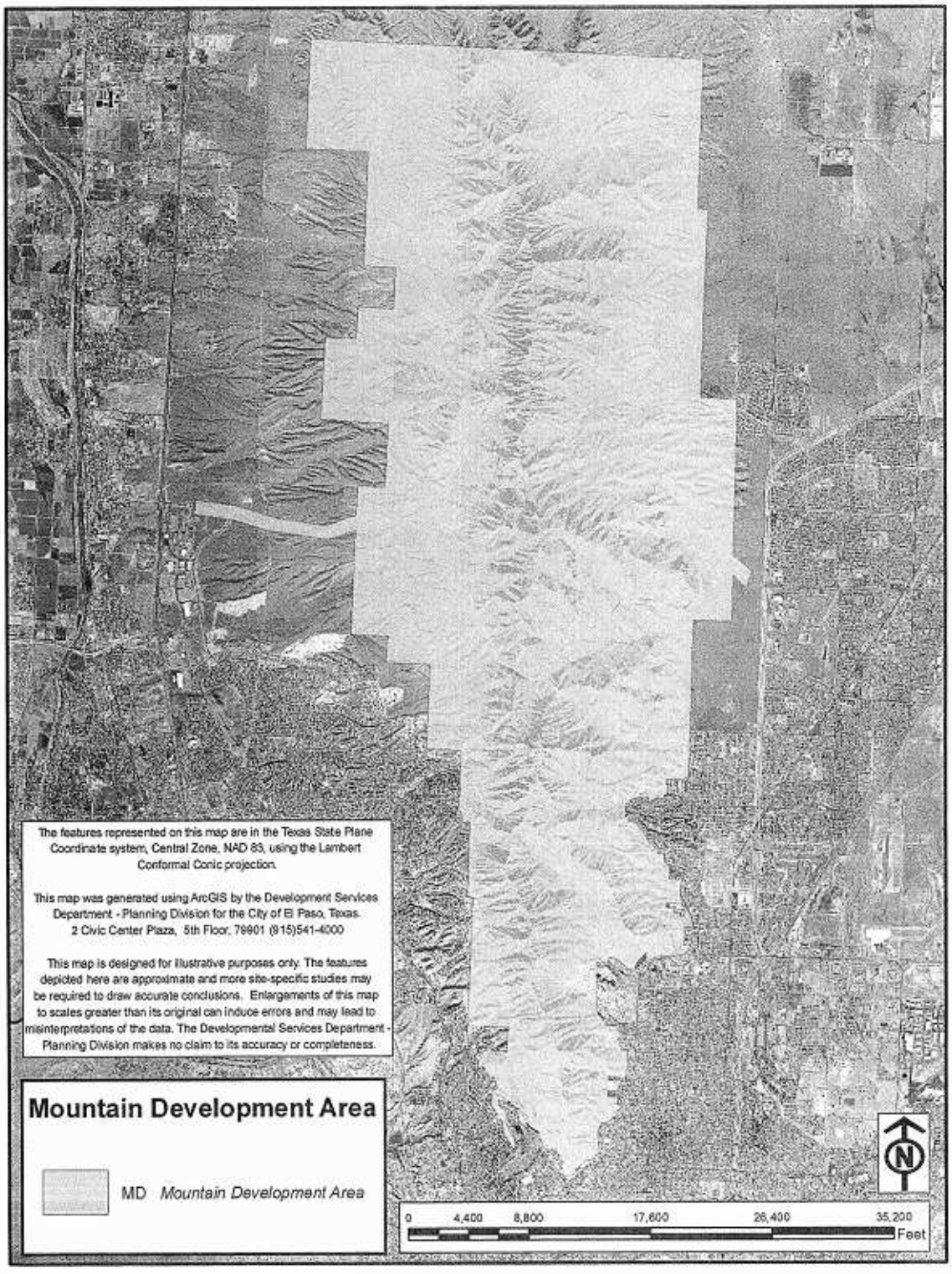
Thence, southwesterly along the said boundary line to a point of intersection with the easterly right-of-way line of the alley adjacent to Block 109, Kern Place Addition;

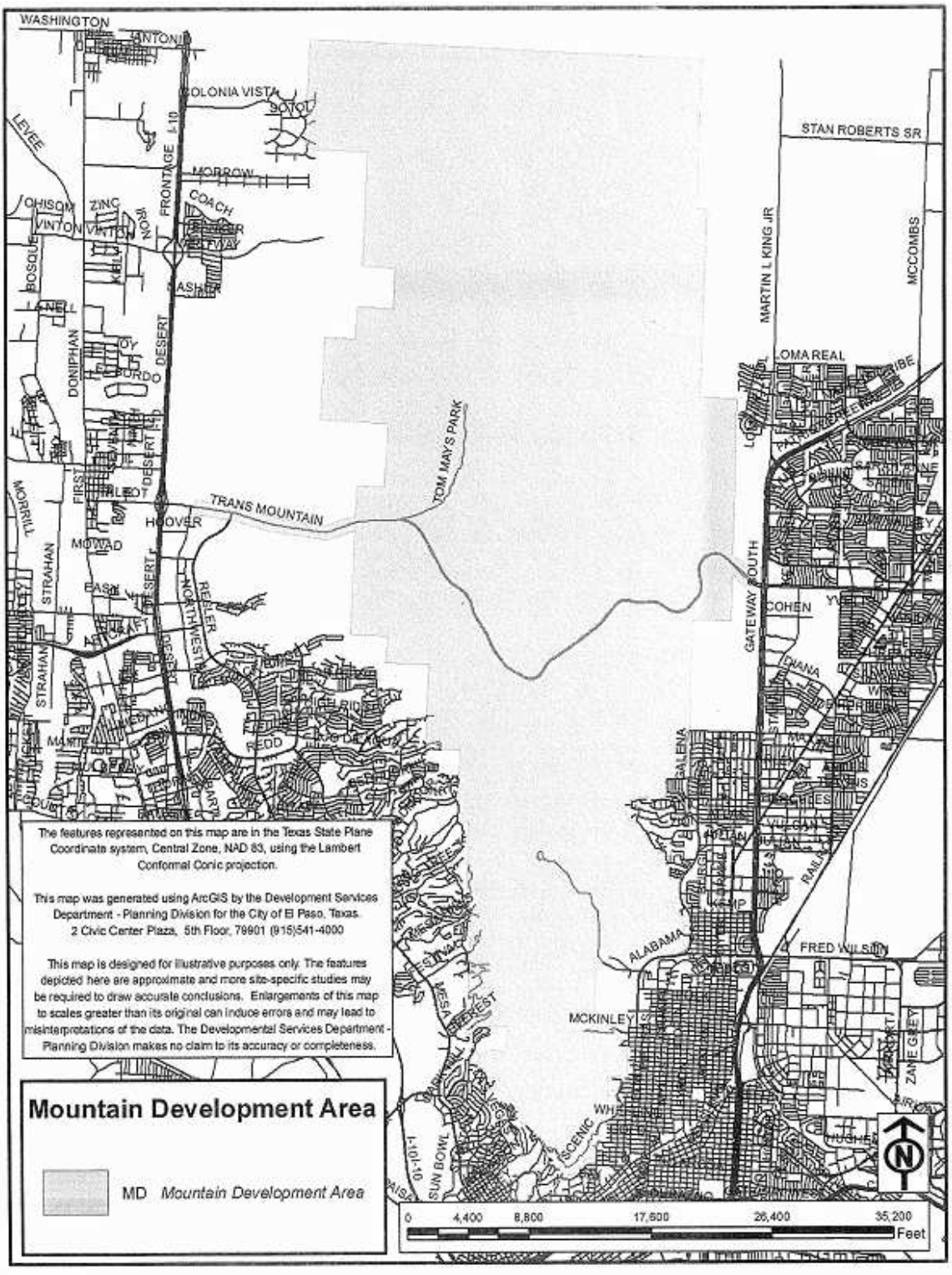
Thence, northwesterly along the eastern right-of-way of the said alley of Blocks 109 and 110 of said subdivision to a point, said point being the point of intersection with the southern boundary line of Piedmont Reservoir;

Thence, southwesterly along the southern boundary line of Piedmont Reservoir to a point of intersection with the easterly right-of-way line of Piedmont Drive; Thence, northerly on the easterly right-of-way line of Piedmont Drive to its termination;
Thence, northeasterly along the easterly boundary of Villa Roja Unit One and Unit Two Subdivisions to the southeast corner of Lot 2A, Block 23, Mission Hills Addition;
Thence, along the zigzag eastern and northern boundary lines of Mission Hills Addition to a point on the easterly right-of-way of Stanton Drive, said point also being the northwest corner of Block 29, Mission Hills Subdivision;
Thence, northeasterly along the easterly right-of-way line of Stanton Drive to the south line of Camelot Heights Addition;
Thence, southeasterly and northeasterly around Tract 8, Camelot Heights Subdivision to the south line of an El Paso Electric Company easement;
Thence, southeasterly along the said south line to a point of intersection with the east line of the F.W. Brown Survey No. 224;
Thence, in a northerly direction along the east line of F. W. Brown Survey No. 224 to its northwest corner;
Thence, in a westerly direction along the north line of the aforementioned survey to its northwest corner;
Thence, in a southerly direction along the west line of the F. W. Brown Survey No. 224 to the C.M. Newman Survey No. 219's northeast corner;
Thence, in a westerly direction along the north line of Survey No. 219 to its intersection with the southwest corner of the E. D. Strong Survey No. 217;
Thence, in a northerly direction along the survey line common to the E. D. Strong Survey No. 217, H. G. Foster Survey No. 261, and the A. F. Miller Survey No. 216 to the northeast corner of the A. F. Miller Survey No. 216;
Thence, in a westerly direction along the north line of said survey to a point that is the southeast corner of the H. G. Foster Survey No. 259;
Thence, in a northerly direction along the survey line that is common to the H. G. Foster Survey No. 259 and H. G. Foster Survey No. 260, to the northeast corner of the H. G. Foster Survey No. 259;
Thence, in a westerly direction along the north line of said survey to a point of intersection with the southeast corner of Unit 9, Coronado Country Club Estates Subdivision;
Thence, northerly, northwesterly and westerly along the eastern and northern boundary line of Unit 9, Coronado Club Estates to a point of intersection with the west line of the A.G. McMath Survey No. 298;
Thence, in a northerly direction along the said west boundary line to the northeast corner of the H.G. Foster Survey No. 258;
Thence, in a westerly direction along the north line of said survey to a point, said point also being the southeast corner of the H. G. Foster Survey No. 262;
Thence, in a northerly direction along the east line of the H. G. Foster Survey No. 262 to its northeast corner;
Thence, westerly along the north line of said survey to a point of intersection marking the southeast corner of the S. J. Larkin Survey No. 266;
Thence, northerly along the east line of said survey to its northeast corner;
Thence, westerly along the north line of S. J. Larkin Survey No. 266 to a point common to the southeast corner of the S. J. Larkin Survey No. 267, and the southwest corner of the S. J. Larkin Survey No. 268;
Thence, northerly along a line common to the S. J. Larkin Survey Nos. 267 and 268 a distance 5,269 feet more or less a common survey corner to S. J. Larkin Survey Nos. 267, 268, 269 and Nellie D. Mundy Survey No. 246;

Thence, northerly along a line common to the S. J. Larkin Survey No. 269 and the Nellie D. Mundy Survey No. 246, a distance of 2,217 feet more or less, said being 500 feet southerly and perpendicular to the centerline of Woodrow Bean Road (Loop 375);
Thence, meandering southwesterly, parallel and 500 feet from the centerline of Trans-Mountain Road (Loop 375) to P. 1. Station 174 + 48.85 right-of-way plans of said Trans-Mountain Road (Loop 375);
Thence, northwesterly, parallel and 500 feet from the centerline of Trans-Mountain Road (Loop 375), a distance of 2 miles more or less;
Thence, northerly at a perpendicular to Trans-Mountain Road (Loop 375), a distance of 500 feet to the centerline of same;
Thence, continuing northerly at a perpendicular to Trans-Mountain Road (Loop 375), a distance of 500 feet;
Thence, southeasterly, parallel and 500 feet from the centerline of Trans-Mountain Road (Loop 375), a distance of 2 miles more or less to P. 1. Station 174 + 48.85 right-of-way plans of said Trans-Mountain Road (Loop 375);
Thence, northeasterly, parallel and 500 feet from the centerline of Trans-Mountain Road (Loop 375) to a line common to the Nellie D. Mundy Survey No. 246 and S. J. Larkin Survey No. 269;
Thence, northerly along a line common to the Nellie D. Mundy Survey No. 246 and the S. J. Larkin Survey No. 269, a distance of 2,100 more or less to the northwest corner of said Survey No. 269, same being the south line of Section 9, Block 82, Tsp. 1, T & P RR Co. Surveys;
Thence, east along a line common to Section 9, Block 82, Tsp. 1, T & P RR Co. Surveys and S. J. Larkin Survey No. 269 to a corner to Sections 8 and 9, Block 82, Tsp. 1, T & P RR Co. Surveys;
Thence, northerly along a line common to Sections 8 and 9, Block 82, Tsp. 1, T & P RR Co. Surveys to a corner common to Sections 6, 7, 8 and 9 of same;
Thence, westerly along a line common to Sections 6 and 9, Block 82, Tsp. 1, T & P RR Co. Surveys to a corner common to said Sections 6, 9, 10 and Laura E. Mundy Survey No. 236;
Thence, northerly along a line common to Section 6, Block 82, Tsp. 1, T & P RR Co. Surveys and Laura E. Mundy Survey No. 236 to a corner common to Sections 5 and 6, Block 82, Tsp. 1, T & P RR Co. Surveys and Laura E. Mundy Surveys Nos. 235 and 236;
Thence, easterly along a line common to Sections 5 and 6, Block 82, Tsp. 1, T & P RR Co. Surveys a distance of 2,600 feet more or less;
Thence, northerly through Section 5, Block 82, Tsp. 1, T & P RR Co. Surveys a distance of 2,600 feet more or less;
Thence, easterly continuing through Section 5, Block 82, Tsp. 1, T & P RR Co. Surveys to a line common to Section 5 and 4 of same;
Thence, northerly along a line common to Sections 4 and 5, Block 82, Tsp. 1, T & P RR Co. Surveys to a corner common to Sections 3, 4 and 5, Block 82, Tsp. 1, T & P RR Co. Surveys and Clara A. Mundy Survey No. 253;
Thence, westerly along a line common to Section 5, Block 82, Tsp. 1, T & P RR Co. Surveys and Clara A. Mundy Survey No. 253 to a corner common to the Clara A. Mundy Surveys Nos. 250 and 253;
Thence, northerly along a line common to Clara A. Mundy Survey Nos. 250, 253, 249 and 252, a distance of 8,800 feet more or less;
Thence, westerly through Clara A. Mundy Survey No. 249 to a common boundary to said Survey No. 249 and the Maria Rodriguez Survey No. 35;
Thence, northerly along a line common to the Maria Rodriguez Survey No. 35 and Clara A. Mundy Survey Nos. 248 and 249 to the northwest corner of said Survey No. 249;

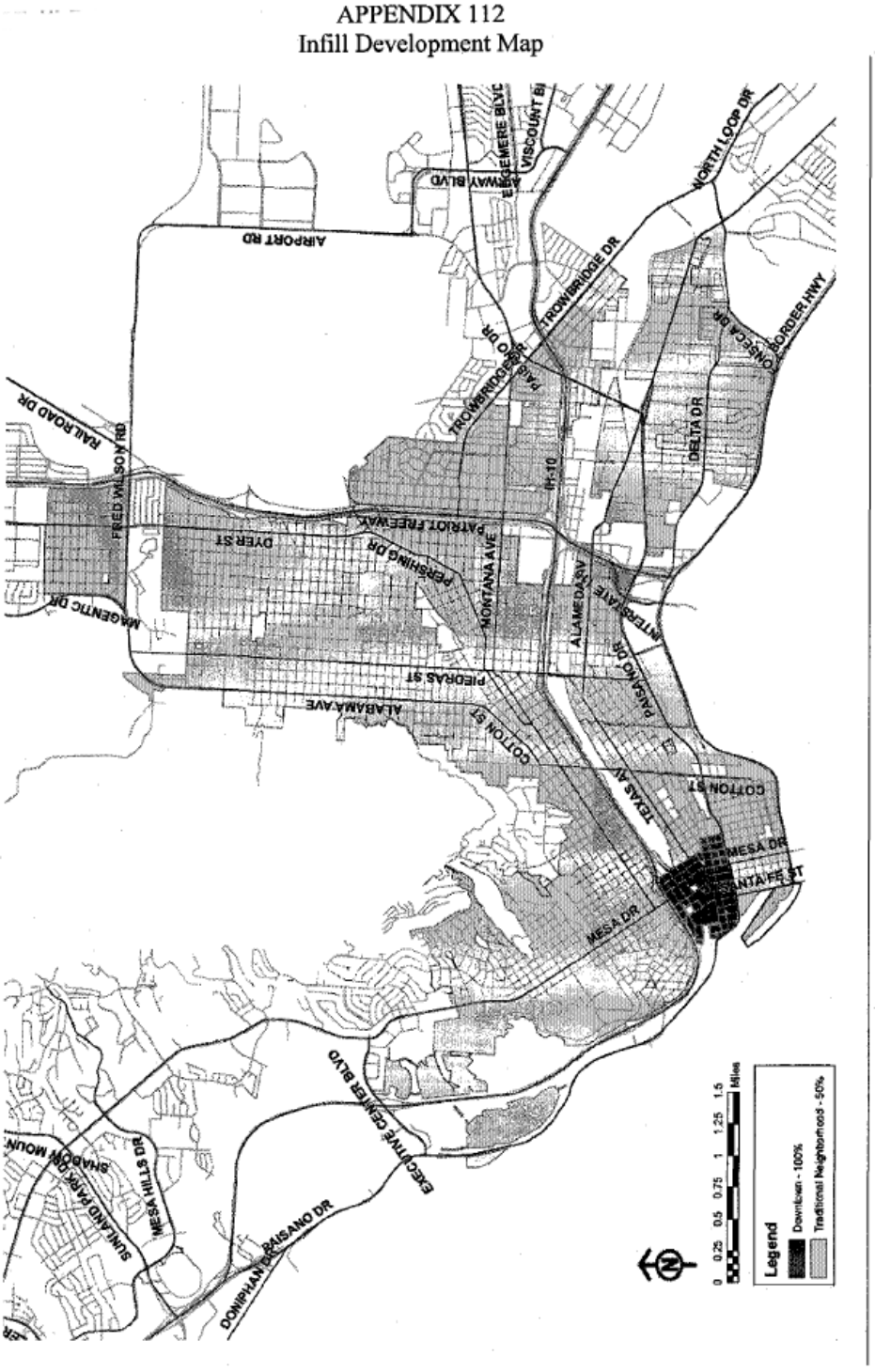
Thence, northerly through the Clara L. Mundy Survey No. 248, to the Texas-New Mexico state boundary line;
Thence, easterly along the said state boundary line along the northern survey lines of the C. A. Mundy Survey No. 251; Section 1, Block 82, Tsp. 1; Sections 6, 5 and 4, Block 81, Tsp. 1, T & P RR Co. Surveys, respectively, to a point being the northeast corner of Section 4, Block 81, Tsp. 1, T & P RR Co. Surveys;
Thence, southerly along the east survey line of Sections 4 and 9, Block 81, Tsp. 1, T & P RR Co. Surveys, respectively, to a point marking the southeast corner of Section 9, Block 81, Tsp. 1, T & P RR Co. Surveys;
Thence, easterly along the north line of Section 16, Block 81, Tsp. 1, T & P RR Co. Surveys to its northeast corner;
Thence, southerly along a line common to Sections 15, 16, 17 and 18, Block 81, Tsp. 1, T & P RR Co. Surveys to a common corner to said Sections 17 and 18, Block 81;
Thence, continuing southerly along a line common to Sections 23 and 24, Block 81, Tsp. 1, T & P RR Co. Surveys, a distance of 2,600 feet more or less;
Thence, easterly through Section 23, Block 81, Tsp. 1, T & P RR Co. Surveys a distance of 2,600 feet more or less;
Thence, southerly through Sections 23, 26 and 31, Block 81, Tsp. 1, T & P RR Co. Surveys to P. T. Station 603 + 26.36 of the right-of-way plans of Trans-Mountain Road (Loop 375) being at a perpendicular and 500 feet from the centerline of same;
Thence, southeasterly, parallel and 500 feet from the centerline of Trans-Mountain Road (Loop 375) to P. C. Station 627 + 0.46 of the right-of-way plans of Trans-Mountain Road (Loop 375);
Thence, southwesterly at a perpendicular to Trans-Mountain Road (Loop 375), a distance of 500 feet to the centerline of same;
Thence, continuing southwesterly at a perpendicular to Trans-Mountain Road (Loop 375) a distance of 500 feet;
Thence, northwesterly, parallel and 500 feet from the centerline of Trans-Mountain Road (Loop 375) to a point 2,600 feet more or less from the west line of Section 31, Block 81, Tsp. 1;
Thence, southerly through Sections 31 and 36, Block 81, Tsp. 1, T & P RR Co. Surveys and parallel to the west line of said Sections 31 and 36, of same to a point, said point being 2,600 feet more or less south from the north line of said Section 36, Block 81, Tsp. 1;
Thence, westerly through Section 36, Block 81, Tsp. 1, T & P RR Co. Surveys, a distance of 2,600 feet more or less to a common boundary to Sections 35 and 36 of same;
Thence, southerly along a line common to a portion of Sections 35 and 36, Block 81, Tsp. 1 and Sections 2 and 3, Block 81, Tsp. 2, T & P RR Co. Surveys to the point of beginning.


The features represented on this map are in the Texas State Plane Coordinate system, Central Zone, NAD 83, using the Lambert Conformal Conic projection.
This map was generated using ArcGIS by the Development Services Department - Planning Division for the City of El Paso, Texas. 2 Civic Center Plaza, 5th Floor, 79901 (915)541-4000
This map is designed for illustrative purposes only. The features depicted here are approximate and more site-specific studies may be required to draw accurate conclusions. Enlargements of this map to scales greater than its original can induce errors and may lead to misinterpretations of the data. The Developmental Services Department - Planning Division makes no claim to its accuracy or completeness.
Mountain Development Area
MD Mountain Development Area
N
0 4,400 8,800 17,600 26,400 35,200
Feet



(Ord. 16898 § 1, 2008)

APPENDIX 112 INFILL DEVELOPMENT MAP



(Ord. No. 17576, § 3, 6-7-2011)

APPENDIX 113 STREET DESIGN MANUAL

The El Paso Street Design Manual (SDM) is the detailed specifications, procedures and standards approved for the purpose of regulating the design and construction of specified improvements. Click on the link above to view the entire SDM.

(Ord. No. 19327, § 1, 4-26-2022)

Title 20

ZONING

Chapters:

20.02	General Provisions and Definitions
20.04	Administrative Provisions
20.06	Zoning Districts and Map
20.08	Permissible Uses
20.10	Supplemental Use Regulations
20.12	Density and Dimensional Standards
20.14	Off-Street Parking, Loading and Storage Standards
20.16	Screening and Fencing
20.18	Sign Regulations
20.20	Historic Landmark Preservation
20.22	Nonconforming Situations
20.24	Enforcement—Penalty
Appendix A	Table of Permissible Uses
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Appendix C	Minimum Parking Requirements

Title 20

ZONING

Chapters:

20.02	**General Provisions and Definitions**
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20.06	**Zoning Districts and Map**
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Appendix A	**Table of Permissible Uses**
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Chapter 20.02

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20.02.012 Purpose.

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20.02.572 Minor utility facility.

20.02.574 Mobile home.

20.02.576 Mobile home park.

20.02.578 Mobile home (sales, display and repair).

20.02.580 Mobile home space.

20.02.582 Mobile office/storage unit (related to construction operations).

20.02.584 Mobile office/storage unit (related to sales or rental).

20.02.586 Mobile service unit.

20.02.588 Mobile recycling unit.

20.02.590 Model dwelling.

20.02.592 Mortuary.

20.02.594 Motel.

20.02.596 Motor-carrier.

20.02.598 Motor-carrier terminal.

20.02.559 Masonry wall.

20.02.600 Motorcycle.

20.02.602 Motor vehicle.

20.02.604 Motor vehicle repair, major.

20.02.606 Motor vehicle repair, minor.

20.02.608 Motor vehicle storage yard.

20.02.610 Motor vehicle wrecking yard.

20.02.612 Moving and storage facility.

20.02.614 Music store.

20.02.616 Neighborhood fair, carnival.

20.02.618 Nonconforming lot.

20.02.620 Nonconforming structure.

20.02.622 Nonconforming use.

20.02.624 Nonionizing electromagnetic radiation (NIER) report.

20.02.626 Nonmetallic mineral product manufacturing.

20.02.628 Nude live entertainment club.

20.02.630 Nursing home.

20.02.632 Nursery, greenhouse.

20.02.634 Nursery (industrial-scale).

20.02.636 Office, administrative and manager's.

20.02.638 Office, business.

20.02.640 Office, medical.

20.02.642 Office, professional.

20.02.644 Office warehouse.

20.02.646 Open pit mining.

20.02.648 Open space.

20.02.650 Open space, common.

20.02.651 Natural open space.

20.02.652 Open space, private.

20.02.654 Open space, public.

20.02.656 Operator, flea market.

20.02.658 Optical dispensary.

20.02.660 Orphanage, shelter.

20.02.662 Other retail establishment (high-volume).

20.02.664 Other retail establishment (low-volume).

20.02.666 Other wholesale establishment (high-volume).

20.02.668 Other wholesale establishment (low-volume).

20.02.670 Package liquor store.

20.02.672 Paint ball center (indoor).

20.02.674 Paint ball center (outdoor).

20.02.676 Parking lot.

20.02.678 Parking reduction.

20.02.680 Parking space, off-street.

20.02.682 Parking spaces (serving another property).

20.02.684 Parkway.

20.02.686 Passenger car.

20.02.688 Passenger station.

20.02.690 Passenger terminal.

20.02.691 Passive recreation.

20.02.692 Passive solar energy system.

20.02.694 Pasturage (small or large animals).

20.02.696 Patio house.

20.02.697 Pawn shop.

20.02.698 Performing arts center.

20.02.700 Performance standard.

20.02.702 Person.

20.02.704 Personal care facility.

20.02.706 Personal care services.

20.02.708 Personal goods repair.

20.02.710 Personal wireless service facility.

20.02.712 Petroleum products manufacturing.

20.02.714 Pharmacy.

20.02.716 Phasing plan.

20.02.718 Photo finishing lab.

20.02.719 Place of public assembly.

20.02.720 Plan commission.

20.02.722 Planned development.

20.02.724 Planned residential development.

20.02.724.1 Plastics products finishing.

20.02.724.2 Plastics products manufacturing.

20.02.726 Poultry hatchery.

20.02.728 Precision equipment repair.

20.02.730 Primary metal manufacturing.

20.02.732 Primary system.

20.02.734 Principal use.

20.02.736 Produce stand.

20.02.738 Provider.

20.02.740 Premises.

20.02.742 Processing facility, heavy.

20.02.744 Processing facility, light.

20.02.745 Processing facility, waste.

20.02.746 Property line.

20.02.748 Public building.

20.02.750 Public entryway.

20.02.752 Public utility.

20.02.754 Public utility facility.

20.02.756 Public utility service.

20.02.758 Pumpkin patch.

20.02.760 Quadraplex.

20.02.762 Quarry.

20.02.764 Racetrack, auto or truck.

20.02.766 Racetrack, motorcycle.

20.02.768 Racquetball club, indoor (with/without restaurant and bar).

20.02.770 Racquetball club, outdoor (with/without restaurant and bar).

20.02.772 Radio transmitting and receiving facility.

20.02.774 Railroad repair shop.

20.02.776 Railroad right-of-way (R.O.W.).

20.02.778 Railroad spur track.

20.02.780 Railyard.

20.02.782 Raising (small or large animals).

20.02.784 Raising crops.

20.02.786 Ranchette (greater than one acre and less than five acres).

20.02.788 Raw material processing.

20.02.790 Recreation vehicle.

20.02.792 Recreation vehicle park.

20.02.794 Recyclable material.

20.02.796 Recycling facility.

20.02.798 Recycling collection facility, large (greater than two thousand square feet).

20.02.800 Recycling collection facility, small (less than or equal to two thousand square feet).

20.02.802 Recycling collection facility, temporary.

20.02.804 Regulations.

20.02.805 Environmental and wildlife research.

20.02.806 Research laboratory.

20.02.808 Resource recovery plant.

20.02.810 Restaurant, drive-in.

20.02.812 Rest home.

20.02.814 Retail shipping center.

20.02.816 Reverse vending machine.

20.02.818 Riding academy.

20.02.820 Reserved.

20.02.822 Sales stands (ranch and farm products).

20.02.824 Salvage yard (scrap materials).

20.02.826 Sand and gravel pit.

20.02.828 Sand or gravel, extraction of.

20.02.830 Sanitarium.

20.02.832 Sanitary landfill.

20.02.834 Sauna, exercise room.

20.02.836 Scenic area.

20.02.838 Scenic corridor.

20.02.840 School—Elementary.

20.02.841 School—Secondary.

20.02.842 School, arts and crafts.

20.02.844 School, trade, business or vocational.

20.02.846 Screening.

20.02.848 Seafood product preparation and processing.

20.02.850 Seat.

20.02.852 Secondary mobile home unit.

20.02.852.1 Security fence.

20.02.854 Self-storage warehouse.

20.02.856 Setback line.

20.02.858 Shooting range, archery or gun (indoor).

20.02.860 Shooting range, archery or gun (outdoor).

20.02.862 Shopping center.

20.02.864 Shopping center, community.

20.02.866 Shopping center, convenience.

20.02.868 Shopping center, neighborhood.

20.02.870 Shopping center, regional.

20.02.871 Superregional shopping center.

20.02.872 Shrub.

20.02.874 Sign.

20.02.876 Sign, active motion inflatable.

20.02.878 Sign, add-ons.

20.02.880 Sign, adopt-a-median.

20.02.882 Sign area.

20.02.884 Sign, auxiliary.

20.02.886 Sign, awning.

20.02.888 Sign, banner.

20.02.890 Sign, billboard.

20.02.892 Sign, building marker.

20.02.894 Sign, bulletin.

20.02.896 Sign, canopy.

20.02.897 Sign, changeable electronic variable message.

20.02.898 Sign, city pride sign.

20.02.900 Sign, construction site.

20.02.902 Sign cut-outs.

20.02.904 Sign, directory.

20.02.906 Sign, educational.

20.02.908 Sign, externally illuminated.

20.02.910 Sign height.

20.02.912 Sign, home occupation.

20.02.914 Sign, indirectly illuminated.

20.02.916 Sign, internally illuminated.

20.02.918 Sign, junior.

20.02.920 Sign, marquee.

20.02.921 Sign, mobile billboard.

20.02.922 Sign, monument.

20.02.924 Sign, multi-tenant.

20.02.926 Sign, noncommercial message.

20.02.928 Sign, nonconforming.

20.02.930 Sign, off-premise.

20.02.932 Sign, off-premises historic wall sign.

20.02.934 Sign, off-premises temporary parkway.

20.02.936 Sign, off-premises temporary special event directional.

20.02.938 Reserved.

20.02.940 Sign, on-premise.

20.02.941 Sign, perpendicular.

20.02.942 Sign, pole.

20.02.944 Sign, portable.

20.02.946 Sign, poster.

20.02.948 Sign, real estate.

20.02.950 Sign, roof.

20.02.952 Sign, secondary advertising.

20.02.954 Sign, shingle.

20.02.956 Sign, structure area.

20.02.958 Sign, structure support width.

20.02.960 Sign, subdivision identification sign.

20.02.962 Sign, temporary.

20.02.964 Sign, temporary inflatable.

20.02.966 Sign, temporary active motion inflatable.

20.02.968 Sign, temporary banner.

20.02.970 Sign, temporary construction.

20.02.974 Sign, temporary portable.

20.02.976 Sign, temporary real estate.

20.02.978 Sign, temporary real estate banner.

20.02.980 Sign, temporary seasonal display.

20.02.982 Sign, temporary special event.

20.02.984 Sign, temporary subdivision kiosk signs.

20.02.986 Sign, wall.

20.02.987 Sign, wayfinding.

20.02.988 Single-family attached dwelling (atrium, patio, townhouse, condominium).

20.02.990 Single-family detached dwelling.

20.02.992 Site development plan, detailed (DSD).

20.02.994 Site plan, generalized.

20.02.996 Skateboarding facility (indoor).

20.02.998 Skateboarding facility (outdoor).

20.02.1000 Slope.

20.02.1002 Slope, percent average.

20.02.1004 Social, fraternal club.

20.02.1006 Solar conversion system.

20.02.1008 Solar energy.

20.02.1010 Solar energy collector.

20.02.1012 Solar energy conversion system.

20.02.1014 Specialty shop.

20.02.1016 Special exception.

20.02.1018 Special permit use.

20.02.1020 Specified anatomical areas.

20.02.1022 Specified sexual activities.

20.02.1024 Sports arena (multipurpose).

20.02.1026 Stable (including breeding).

20.02.1028 Stacking.

20.02.1030 Stadium.

20.02.1031 Stormwater open space.

20.02.1032 Stormwater retention pond (public/private).

20.02.1034 Story.

20.02.1036 Story, half.

20.02.1038 Street centerline.

20.02.1040 Street line.

20.02.1042 Street, private.

20.02.1044 Street, public.

20.02.1046 Structural alteration.

20.02.1048 Structure.

20.02.1050 Studio, dance.

20.02.1052 Studio, music.

20.02.1054 Studio, photography.

20.02.1056 Subdivision ordinance.

20.02.1058 Substantial conformity.

20.02.1060 Supermarket.

20.02.1062 Superstore.

20.02.1064 Swimming pool (commercial).

20.02.1066 Swimming pool (noncommercial).

20.02.1068 Synagogue.

20.02.1070 Tattoo parlor.

20.02.1072 Telemarketing agency.

20.02.1074 Temple.

20.02.1076 Temporary events on public rights-of-way.

20.02.1078 Temporary use.

20.02.1080 Tennis club.

20.02.1082 Tennis club, indoor (with/without restaurant and bar).

20.02.1084 Tennis club, outdoor (with/without restaurant and bar).

20.02.1086 Tents (special events).

20.02.1088 Testing laboratory.

20.02.1090 Theater, performing.

20.02.1091 Theater, movie theater drive-in (outdoor).

20.02.1092 Townhouse.

20.02.1094 Tractor.

20.02.1096 Traffic division.

20.02.1098 Traffic engineer.

20.02.1100 Trailer, eighteen-wheeler (sales, display and repair).

20.02.1102 Tramway.

20.02.1104 Transfer station.

20.02.1105 Reserved.

20.02.1106 Transportation equipment manufacturing.

20.02.1108 Transportation terminal, Type A.

20.02.1110 Transportation terminal, Type B.

20.02.1112 Travel trailer.

20.02.1114 Travel trailer park.

20.02.1116 Tree, parking lot.

20.02.1118 Tree, project.

20.02.1120 Triplex.

20.02.1122 Truck stop.

20.02.1124 Unit.

20.02.1126 University, college.

20.02.1128 Unnecessary hardship.

20.02.1129 Utility green space.

20.02.1130 Utility storage yard.

20.02.1132 Vehicle.

20.02.1134 Vending machines (inside a building).

20.02.1136 Vendor, flea market.

20.02.1138 Veterinary treatment center (large animals).

20.02.1140 Veterinary treatment center (small animals).

20.02.1142 Wall, screening.

20.02.1144 Warehouse club.

20.02.1146 Warehouses, self-storage.

20.02.1148 Watchman.

20.02.1150 Water and wastewater utility facility.

20.02.1151 Wildlife sanctuary.

20.02.1152 Window, bay.

20.02.1154 Wind-driven electrical generator.

20.02.1156 Wind-driven electrical pump.

20.02.1158 Wind-driven pump.

20.02.1160 Yard.

20.02.1162 Yard, required front.

20.02.1164 Yard, required rear.

20.02.1166 Yard, required side.

20.02.1168 Yard, side street.

20.02.1170 Youth organization (with/without living facility).

20.02.1172 Zero lot line.

20.02.1174 Zoning administrator.

Article I. General Provisions

20.02.004 Title.

The ordinance codified in this title shall be known as the "Zoning Ordinance for the City of El Paso, Texas." (Ord. 16653 § 2 (part), 2007)

20.02.008 Applicability.

This title shall apply to the incorporated area of El Paso, Texas. (Ord. 16653 § 2 (part), 2007)

20.02.012 Purpose.

The zoning regulations and districts as established in this title have been made in accordance with a comprehensive plan for the purpose of promoting health, safety, morals and the general welfare of the city. They have been designed to lessen the congestion in the streets; to secure safety from fire, panic and other dangers; to provide adequate light and air; to prevent the overcrowding of land; to avoid undue concentration of population; to facilitate the adequate provision of transportation, water, sewerage, schools, parks and other public requirements. They have been made with reasonable consideration, among other things, for the character of the district and its peculiar suitability for particular uses, and with a view to conserving the value of buildings and encouraging the most appropriate use of the land throughout the city. (Ord. 16653 § 2 (part), 2007)

20.02.016 Interpretation.

In interpreting and applying the provisions of this title, they shall be held to be the minimum requirements for the promotion of the public safety, health, convenience, comfort, prosperity or general welfare. It is not intended by this title to interfere with, or abrogate or annul any easements, covenants, or other agreement between parties;

provided, however, that where this title imposes a greater restriction upon the use of buildings or premises or upon height of buildings, or requires larger open spaces or lot dimensions than are imposed or required by other resolutions, ordinances, rules, regulations or by easements, covenants or agreements, the provisions of this title shall govern. (Ord. 16653 § 2 (part), 2007)

Article II. Definitions

20.02.020 Rules of construction.

The following general rules of construction shall apply to the regulations of this title:

A. The singular number includes the plural and the plural the singular, unless the context clearly indicates the contrary.

B. Words used in the present tense include the past and future tenses, and the future the present.

C. The word "shall" is always mandatory. The word "may" is permissive.

D. The word "building" or "structure" includes any part thereof, and the word "structure" includes the word "building."

E. Words and terms not defined herein shall be interpreted in accord with Merriam-Webster's Collegiate Dictionary, Tenth Edition. (Ord. 16653 § 2 (part), 2007)

20.02.022 Generally.

For the purpose of this title, certain terms and words are defined as set forth in this chapter. (Ord. 16653 § 2 (part), 2007)

20.02.024 Abutting.

"Abutting" when referring to zoning, means having zoning district boundaries in common. When referring to lots or parcels of land, abutting shall mean having lot lines in common. Lots or parcels of land, which touch at corners only, shall not be deemed abutting. "Abut," "adjacent," "adjoining" and "contiguous" means the same as "abutting." (Ord. 16653 § 2 (part), 2007)

20.02.026 Access or accessway.

"Access or accessway" means the public or private street by which pedestrians and vehicles shall have lawful and usable ingress and egress to a property line. Provided, however, that access may be provided through a private easement that is filed of record. (Ord. 16653 § 2 (part), 2007)

20.02.028 Accessory building.

"Accessory building" means a detached subordinate building or other structure, the use of which is clearly incidental to or customarily found in connection with and located on the same lot as the main building or principal use of the land. (Ord. 16653 § 2 (part), 2007)

20.02.029 Accessory dwelling unit.

"Accessory dwelling unit" means an accessory building that is intended to be used as a dwelling unit.
(Ord. No. 17532, § 1, 4-19-2011)

20.02.030 Accessory use.

"Accessory use" means a use, which is clearly incidental to or customarily found in connection with, and subordinate in area, extent and purpose to the principal use and is located on the same lot as the principal use of the premises. (Ord. 16653 § 2 (part), 2007)

20.02.032 Acreage, gross.

"Gross acreage" means the total area within a parcel of land. (Ord. 16653 § 2 (part), 2007)

20.02.032.5 Active recreation.

"Active recreation" means recreational activities that are primarily designed with structured improvements and that require modification of natural landforms and can include the provision of service facilities, playing fields, or equipment. Examples of structured improvements may include playground equipment, sports fields, surfaced courts, swimming pools, skate parks, multipurpose centers and open play areas. Ancillary to these highly structured uses, active recreational facilities may include areas for informal recreational uses such as open playing fields and passive recreational activities such as sightseeing, hiking and picnicking.
(Ord. No. 18531, § 2, 6-28-2016)

20.02.033 Adaptive reuse.

"Adaptive reuse" means the conversion or change of use of all or any part of an existing building to a residential use, a mixed-use or any use allowed in the underlying district or any construction to expand or modify an existing building located in an area designated with an adaptive reuse overlay that meets the development guidelines adopted in the city's comprehensive plan for the area.
(Ord. No. 17754, § 1, 3-20-2012)

20.02.034 Reserved.

Editor's note—Ord. No. 17442, § 1, adopted October 26, 2010, repealed § 20.02.034, which pertained to administrator and derived from Ord. 16653 § 2 (part), 2007.

20.02.036 Adult bookstore.

"Adult bookstore" means an establishment having a majority of its stock in trade, books, maga-

zines and other periodicals, "peep shows," film strips, video, electronic or digital recordings which are distinguished or characterized by their emphasis on pictorial, photographic, or cinematic representation of "specified sexual activities" or "specified anatomical areas" (as defined in this chapter), or an establishment with a section or segment devoted to the sale, rental or display of such material, where such section or segment comprises twenty percent or more of such establishment's stock in trade, sales or rentals. (Ord. 16653 § 2 (part), 2007)

20.02.038 Adult day care center.

"Adult day care center" means a facility that provides care for adults for less than twenty-four hours a day. (Ord. 16653 § 2 (part), 2007)

20.02.040 Adult foster care.

"Adult foster care" means a personal care facility operated in accordance with the regulations of the Texas Administrative Code, Chapter 48, Subchapter K. (Ord. 16653 § 2 (part), 2007) (Ord. No. 17577, § 1, 7-7-2011)

20.02.042 Adult motion picture theater.

"Adult motion picture theater" means a facility in which material is presented that is distinguished or characterized by an emphasis on matter depicting, describing or relating to "specified sexual activities" or "specified anatomical areas" (as defined in this chapter) for observation by patrons of such establishments, and which presents such materials for at least any one hundred twenty days in any twelve-month period. (Ord. 16653 § 2 (part), 2007)

20.02.044 Airpad.

"Airpad" means a type of passenger terminal used for the storing, landing or takeoff of a small single-engine or light twin-engine aircraft for the purpose of loading or unloading passengers, but does not afford refueling, maintenance, repair or other facilities. (Ord. 16653 § 2 (part), 2007)

20.02.046 Airport.

"Airport" means a type of freight or passenger terminal that is used to accommodate all phases of operation of aircraft, whether private or commercial. (Ord. 16653 § 2 (part), 2007)

20.02.048 Alley.

"Alley" means a dedicated public right-of-way affording secondary means of access to abutting property and service to the rear or side of property whose principal frontage is on another street. (Ord. 16653 § 2 (part), 2007)

20.02.050 Alteration.

"Alteration" means any construction or renovation to an existing structure other than repair or addition. (Ord. 16653 § 2 (part), 2007)

20.02.052 Amusement game complex.

"Amusement game complex" means a group of more than four amusement game machines in the same place, location or premises. (Ord. 16653 § 2 (part), 2007)

20.02.054 Amusement game machine.

"Amusement game machine" means a coin-operated machine or device which whether mechanical, electrical, electronic, digital or video, shall be ready for play by the insertion of a coin, metal slug or token, and may be operated by the public for use as a game, entertainment or amusement, the object of which is to achieve either a high or low score, which by comparison to the score of other players, whether playing concurrently or not, demonstrates relative skill or competence or indicates in any other way competitive advantage of one player or team over another, regardless of skill or competence, or for any other purpose other than the dispensing or vending of merchandise, music or service exclusively. (Ord. 16653 § 2 (part), 2007)

20.02.056 Amusement park.

"Amusement park" means a commercially operated park with various devices for entertainment

and booths for the sale of food and drink. (Ord. 16653 § 2 (part), 2007)

20.02.058 Amusement rides (commercial).

"Amusement rides (commercial)" means a temporary commercial use of land with various rides for entertainment and booths for the sale of food and drink. (Ord. 16653 § 2 (part), 2007)

20.02.060 Animal.

"Animal" means any living animal except human beings and includes (without limiting the generality thereof) mammals, birds, reptiles and fish. (Ord. 16653 § 2 (part), 2007)

20.02.062 Animal crematory.

"Animal crematory" means a structure containing a furnace used or intended to be used for the cremation, or reducing to ashes, of animal remains. (Ord. 16653 § 2 (part), 2007)

20.02.064 Animal food manufacturing.

"Animal food manufacturing" means a facility for the work or processing necessary for the production of animal food. (Ord. 16653 § 2 (part), 2007)

20.02.066 Animal kennel.

See "Kennel." (Ord. 16653 § 2 (part), 2007)

20.02.068 Animal slaughtery and processing.

"Animal slaughtery and processing" means a facility where animals are slaughtered and processed. (Ord. 16653 § 2 (part), 2007)

20.02.070 Animals, keeping for enjoyment purposes.

"Animals, keeping for enjoyment purposes" means animals that are customarily kept for personal use or enjoyment, not raised for commercial purposes. (Ord. 16653 § 2 (part), 2007)

20.02.072 Apartment.

"Apartment" means a part of a building or building complex containing culinary and bathroom facilities, consisting of a room or suite of rooms intended, designed and used as a dwelling unit by an individual or a single-family. (Ord. 16653 § 2 (part), 2007)

20.02.074 Apartment building (five or more units).

"Apartment building (five or more units)" means a building or part of a building containing five or more attached dwelling units. (Ord. 16653 § 2 (part), 2007)

20.02.076 Area of intersection.

"Area of intersection" means that area bounded by the converging of all congruent right-of-way lines. (Ord. 16653 § 2 (part), 2007)

20.02.078 Areas of special control.

"Areas of special control" means those areas designated in this title as worthy of protection from off-premises advertising because of inherent environmental, scenic or significant historical qualities. (Ord. 16653 § 2 (part), 2007)

20.02.080 Arterial thoroughfare.

"Arterial thoroughfare" means a street designed as an interstate, major arterial or minor arterial on the adopted major thoroughfare plan of the city. (Ord. 16653 § 2 (part), 2007)

20.02.082 Assisted living facility.

"Assisted living facility" means an establishment that furnishes food and shelter and provides personal care services to four or more persons who are unrelated to the proprietor of the establishment. (Ord. 16653 § 2 (part), 2007)

20.02.084 Athletic facility (indoor).

See "Exercise facility (indoor)." (Ord. 16653 § 2 (part), 2007)

20.02.086 Athletic facility (outdoor).

"Athletic facility (outdoor)" means a developed recreation area that may contain a playground as well as fields for competitive sports such

as baseball, football or soccer. (Ord. 16653 § 2 (part), 2007)

20.02.088 Atrium house.

"Atrium house" means an attached single-family dwelling, shaped to surround or partly surround a private covered space called an atrium which is a principal source of natural light for the interior of the house. (Ord. 16653 § 2 (part), 2007)

20.02.090 Automobile (sales, service, storage and rental).

"Automobile (sales, service, storage and rental)" means a facility that sells or leases new or used automobiles, light trucks or other similar motorized transportation vehicles. The facility may maintain an inventory of the vehicles for sale or lease on site and may provide on-site facilities for the repair and service of the vehicles. (Ord. 16653 § 2 (part), 2007)

20.02.092 Automobile rental location (satellite).

"Automobile rental location (satellite)" means an office where customers may contract for rental use, for the pick up and delivery of automobiles and light trucks. There shall be no maintenance of vehicles on this site. (Ord. 16653 § 2 (part), 2007)

20.02.094 Automobile and light truck lubrication service.

"Automobile and light truck lubrication service" means a service that performs lubrication of automobiles and light trucks. (Ord. 16653 § 2 (part), 2007)

20.02.096 Automotive service station.

"Automotive service station" means any place of business with pumps and underground storage tanks, having as its purpose the retail servicing of motor vehicles with fuels or lubricants, including incidental minor repairs and inspections but not including a general repair shop, paint or body shop, machine shop, vulcanizing shop or any operation requiring the removal or installation of radiator, engine, cylinder heads, crankcase, CV joints, transmission, differential, fenders, doors, bumpers, grills, glass or other body parts, or any body repairing or painting. (Ord. 16653 § 2 (part), 2007)

20.02.098 Automobile wrecking yard.

"Automobile wrecking yard" means a yard consisting of that part of a lot not enclosed by a building, which is used for the wrecking or dismantling of used, damaged or obsolete motor vehicles or trailers or the storage, sale, or dumping of such vehicles or of the salvaged parts therefrom. (Ord. 16653 § 2 (part), 2007)

20.02.100 Automotive repair garage.

"Automotive repair garage" means an area or building which provides for the repair, rebuilding or reconditioning of engines, motor vehicles or trailers, body frame or fender repair, or painting of vehicles. (Ord. 16653 § 2 (part), 2007)

20.02.102 Automotive tune-up service.

"Automotive tune-up service" means a service that does minor engine or motor tune-ups on automobiles or light trucks. (Ord. 16653 § 2 (part), 2007)

20.02.104 Auxiliary rail facilities.

"Auxiliary rail facilities" are accessory to and customarily found in connection with the operation of a railyard. These facilities include a freight station, energy conversion plant, power plant, police station, office, storage facility, fueling station, water station, sanding station, maintenance shop, utility and transmission plant, passenger station, diesel maintenance facility, interlocking tower, railroad repair shop, crew station for temporary lodging of railroad personnel, as well as all equipment and facilities utilized to accomplish the foregoing accessory uses. (Ord. 16653 § 2 (part), 2007)

20.02.106 Auxiliary tracks.

"Auxiliary tracks" are types of tracks commonly found within a railyard that facilitate the

movement of cars, locomotives and trains. (Ord. 16653 § 2 (part), 2007)

20.02.108 Awning.

"Awning" means a detachable, roof-like cover, supported from the walls of a building for protection from sun or weather. (Ord. 16653 § 2 (part), 2007)

20.02.109 Aquarium.

"Aquarium" means an establishment primarily engaged in the preservation and exhibition of live plant and aquatic animal life displays for the benefit of the public.

20.02.110 Ballroom.

See "Dancehall." (Ord. 16653 § 2 (part), 2007)

20.02.112 Bank.

See "Financial institution." (Ord. 16653 § 2 (part), 2007)

20.02.114 Barn.

"Barn" means a building used for the storage of grain, hay, and other farm products, and/or the sheltering of livestock or farm equipment. (Ord. 16653 § 2 (part), 2007)

20.02.116 Basement.

"Basement" means a space wholly or partly underground, and having more than one-half of its height, measured from its floor to its ceiling, below the average of the four sides of the adjoining grade. (Ord. 16653 § 2 (part), 2007)

20.02.118 Base zoning district.

"Base zoning district" means the underlying zoning district that is affected by an overlay designation. (Ord. 16653 § 2 (part), 2007)

20.02.120 Batching plant.

"Batching plant" means a manufacturing facility for the production of concrete or asphalt. (Ord. 16653 § 2 (part), 2007)

20.02.122 Bed and breakfast establishment.

"Bed and breakfast establishment" means a building or portion thereof, other than a hotel, motel or boardinghouse, where, for compensation, eight or fewer rooms are offered as temporary lodging and only breakfast is offered to the registered guest(s). (Ord. 16653 § 2 (part), 2007)

20.02.124 Bed and breakfast inn.

"Bed and breakfast inn" means an owner-occupied or manager-occupied residential structure providing nine or more rooms for temporary, overnight lodging, with or without meals, for paying guests. (Ord. 16653 § 2 (part), 2007)

20.02.126 Bed and breakfast (residence).

"Bed and breakfast (residence)" means an owner-occupied or manager-occupied residential structure providing eight or fewer rooms for temporary, overnight lodging, with or without meals, for paying guests. (Ord. 16653 § 2 (part), 2007)

20.02.128 Billboard.

See "Sign, billboard." (Ord. 16653 § 2 (part), 2007)

20.02.130 Billiard and pool hall.

"Billiard and pool hall" means a place where three or more billiard or pool tables are provided. (Ord. 16653 § 2 (part), 2007)

20.02.132 Block.

"Block" means a unit of land bounded by streets or by a combination of streets and public land, railroad rights-of-way, waterways, or any other barrier to the continuity of development. (Ord. 16653 § 2 (part), 2007)

20.02.134 Board.

"Board" means the zoning board of adjustment of the City of El Paso, Texas. (Ord. 16653 § 2 (part), 2007)

20.02.135 Boarding home facility.

"Boarding home facility" means an establishment that:

a. Furnishes, in one or more buildings, lodging to three or more persons with disabilities or elderly persons who are unrelated to the owner of the establishment by blood or marriage; and

b. Provides community meals, light housework, meal preparation, transportation, grocery shopping, money management, laundry services, or assistance with self-administration of medication but does not provide personal care services to those persons.
(Ord. No. 17577, § 2, 7-7-2011)

20.02.136 Reserved.

Editor's note—Ord. No. 18241, § 1, adopted September 9, 2014, repealed § 10.02.136, which pertained to boardinghouses (rooming or lodging house) and derived from Ord. 16653 § 2 (part), 2007.

20.02.138 Borrow pit (commercial).

"Borrow pit (commercial)" means a location from which earth is extracted for the commercial purpose of being used as fill at a location outside the pit. (Ord. 16653 § 2 (part), 2007)

20.02.140 Borrow pit (related to construction operations).

"Borrow pit (related to construction operations)" means a temporary location from which earth is extracted for the purpose of being used as fill at a location outside the pit. This use is incidental to construction operations during development being conducted on the same tract or subdivision. (Ord. 16653 § 2 (part), 2007)

20.02.142 Bottling works.

"Bottling works" means a facility used for the bottling of liquids. (Ord. 16653 § 2 (part), 2007)

20.02.144 Boutique.

"Boutique" means a small specialty shop or business. (Ord. 16653 § 2 (part), 2007)

20.02.146 Boutique bottling.

"Boutique bottling" means an establishment that contains a restaurant and a beverage bottling facility. In addition to serving food, this establishment manufactures, bottles, cans, packages, and labels alcoholic and/or nonalcoholic beverages for consumption on or off the premises. The total annual production of beverages may not exceed one hundred fifty-five thousand gallons. (Ord. 16653 § 2 (part), 2007)

20.02.148 Bread and bakery product manufacturing.

"Bread and bakery product manufacturing" means a business that produces baked goods primarily for the wholesale market. (Ord. 16653 § 2 (part), 2007)

20.02.148.1 Brewpub.

"Brewpub" (also taproom) sells twenty-five percent or more of its beer on-site and may include significant food services and assembly uses. The beer is brewed primarily for sale in the restaurant and bar, and is often dispensed directly from the brewery's storage tanks. Where allowed by law, brewpubs often sell beer to-go and/or distribute to off-site accounts.
(Ord. No. 019517, § 1, 6-20-2023)

20.02.148.2 Brewery.

"Brewery" or "microbrewery" means an operator that sells seventy-five percent or more of its beer off-site. Microbreweries sell to the public by one or more of the following methods: the traditional three-tier system (brewer to wholesaler to retailer to consumer); the two-tier system (brewer acting as wholesaler to retailer to consumer); and directly to the consumer through carry-outs and/or on-site taproom or restaurant sales.
(Ord. No. 019517, § 1, 6-20-2023)

20.02.149 Brownfield development.

"Brownfield development" means the redevelopment of abandoned or obsolete parcels in which demonstrable environmental remediation or mitigation is undertaken.
(Ord. No. 18688, § 1, 5-30-2017)

20.02.150 Buildable area.

"Buildable area" means the portion of a lot or site, excluding required yard areas, setbacks or open space within which a structure may be built. (Ord. 16653 § 2 (part), 2007)

20.02.152 Building.

"Building" means any structure permanently affixed to a lot or lots and having a roof supported by columns or walls, for the housing or enclosure of persons, animals or property of any kind. (Ord. 16653 § 2 (part), 2007)

20.02.154 Building coverage (lot coverage).

"Building coverage (lot coverage)" means the percentage of a lot that can be covered by a structure or structures or any part thereof, excluding roof overhang. (Ord. 16653 § 2 (part), 2007)

20.02.156 Building, height of.

"Height of building" means the vertical distance measured from the mean elevation of the top of the street curb, within the lot limits, to the highest point of the structure, exclusive of chimneys, ventilators, air conditioners and ducts, elevator equipment, flagpoles, communication antennas, church spires, belfries, water towers, or other

similar vertical projections. (Ord. 16653 § 2 (part), 2007)

20.02.158 Building official.

"Building official" means the person identified and designated in Section 18.02.101.4 of this Code. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17235, § 1, 11-10-2009)

20.02.160 Building, main.

"Main building" means the principal building or one of the principal buildings on a lot, or the building or one of the principal buildings housing the principal use on the lot. (Ord. 16653 § 2 (part), 2007)

20.02.162 Building, principal.

"Principal building" means a building on a lot intended for occupancy by the principal use. (Ord. 16653 § 2 (part), 2007)

20.02.164 Building site.

"Building site" means a lot for a building or structure together with all yards and open space. (Ord. 16653 § 2 (part), 2007)

20.02.166 Bulletin.

See "Sign, bulletin." (Ord. 16653 § 2 (part), 2007)

20.02.168 Bus.

"Bus" means a motor vehicle designed for carrying more than ten passengers and used for the transportation of persons. (Ord. 16653 § 2 (part), 2007)

20.02.170 Cafeteria.

"Cafeteria" means a restaurant where customers serve themselves or are served at a counter. (Ord. 16653 § 2 (part), 2007)

20.02.171 Campground.

"Campground" means any area, place, parcel or tract of land on which three or more campsites are occupied or intended for occupancy, or facilities are established or maintained for the accommodation of camping units for one or more overnight periods, as granted gratuitously or by permission.
(Ord. No. 18531, § 2, 6-28-2016)

20.02.171.5 Camping unit.

"Camping unit" means tents, tent trailers, travel trailers, camping trailers, pick-up campers, motor homes, or any other device or vehicular-type structure intended for use as temporary living quarters or shelter during periods of recreation, vacation, leisure time, or travel.
(Ord. No. 18531, § 2, 6-28-2016)

20.02.171.7 Campsite.

"Campsite" means any plot of ground within a campground used or intended for occupation by a camping unit or units under the control of the camper.
(Ord. No. 18531, § 2, 6-28-2016)

20.02.172 Canal.

"Canal" means an artificial channel for conveyance of water, including laterals. (Ord. 16653 § 2 (part), 2007)

20.02.174 Canopy.

"Canopy" means a detachable, roof-like cover, supported from the ground or deck, floor or walls of a building, for protection from sun and weather. Does not include carport. (Ord. 16653 § 2 (part), 2007)

20.02.176 Caregiver.

"Caregiver" means a person whose duties include the supervision, guidance, and protection of a child or children. (Ord. 16653 § 2 (part), 2007)

20.02.178 Caretaker, property.

"Property caretaker" means one who is employed to maintain, repair and protect a facility or property. (Ord. 16653 § 2 (part), 2007)

20.02.180 Carrier.

"Carrier" means any person, partnership, corporation or organization that undertakes the carrying of freight or persons and offers its transportation services by rail, motor vehicle or aircraft. (Ord. 16653 § 2 (part), 2007)

20.02.182 Car wash, full-service.

"Full-service car wash" means an establishment where washing, drying, polishing or vacuuming of an automobile is done by an employee or owner of the establishment and/or by machinery; and where the driver remains in the automobile or in a designated waiting area. (Ord. 16653 § 2 (part), 2007)

20.02.184 Car wash, self-service.

"Self-service car wash" means an establishment where washing, drying, polishing or vacuuming of an automobile is done by the customer; or where the driver remains in the automobile while the washing, drying and polishing are done by machinery; or a combination thereof. (Ord. 16653 § 2 (part), 2007)

20.02.186 Cellular telecommunication antenna, facility-mounted.

See "Personal Wireless Service Facility, facility-mounted." (Ord. 16653 § 2 (part), 2007)

20.02.188 Cemetery.

"Cemetery" means a place for interment of the dead, above or below ground. (Ord. 16653 § 2 (part), 2007)

20.02.190 Centerline.

See "Street centerline." (Ord. 16653 § 2 (part), 2007)

20.02.192 Child care facility (home or commercial).

"Child care facility (home or commercial)" means an establishment licensed by the government and subject to government regulations, which provides assessment, care, training, education, custody, treatment, or supervision for a child who is not related by blood, marriage, or adoption to the owner or operator of the facility, for all or part of the twenty-four hour day, whether or not the establishment operates for profit or charges for its services. A child care facility includes the people, administration, governing body, activities on or off the premises, operations, buildings, grounds, equipment, furnishings, and materials. A child care facility does not include child placing agencies, family homes, or maternity homes. (Ord. 16653 § 2 (part), 2007)

20.02.194 Child care facility, Type 3.

"Type 3 child care facility" means a type of facility that provides care for from seven to twelve children for up to twenty-four hours per day. These types of facilities are provided in the caregiver's home, require a special permit from the city council, and include, but are not limited to: residential treatment center, therapeutic foster care facilities and treatment training residences. (Ord. 16653 § 2 (part), 2007)

20.02.196 Child care facility, Type 4.

"Type 4 child care facility" means a type of facility that provides care for from seven to twelve children for either less than or up to twenty-four hours per day. These types of facilities are not provided in the caregiver's home, and include, but are not limited to: agency group homes, group day-care homes, residential treatment center, therapeutic foster care facilities and treatment training residences. (Ord. 16653 § 2 (part), 2007)

20.02.198 Child care facility, Type 5.

"Type 5 child care facility" means a type of facility that provides care for more than twelve children for either less than or up to twenty-four hours per day. These types of facilities include, but are not limited to: commercial day-care centers, drop-in day-care centers, residential treatment center, therapeutic foster care facilities and treatment training residences. (Ord. 16653 § 2 (part), 2007)

20.02.200 Child care facility, Type 6.

"Type 6 child care facility" means a facility that is primarily an education facility but also cares for more than twelve children, ages five through thirteen, for less than twenty-four hours per day. This type of facility includes, but is not limited to: schools (grades K through 9) and nursery schools and kindergartens. (Ord. 16653 § 2 (part), 2007)

20.02.202 Child care facility, Type 7.

"Type 7 child care facility" means a facility that provides care for more than twelve children for up to twenty-four hours per day. These types of facilities include, but are not limited to: child care institutions, children's homes, halfway houses, residential treatment camps, emergency shelters, training schools and correctional schools. (Ord. 16653 § 2 (part), 2007)

20.02.204 Child care institution.

"Child care institution" means a child-care facility that provides care for more than twelve children for twenty-four hours a day, including facilities known as children's homes, halfway houses, residential treatment camps, emergency shelters and training or correctional schools for children. (Ord. 16653 § 2 (part), 2007)

20.02.206 Christmas tree stand.

"Christmas tree stand" means a temporary location from which Christmas trees are sold. (Ord. 16653 § 2 (part), 2007)

20.02.208 Church.

"Church" means a building, together with its accessory buildings and uses, where persons regularly assemble for religious worship, and which building together with its accessory buildings and uses (which may include a columbarium), is maintained and controlled by a religious body organized to sustain public worship. (Ord. 16653 § 2 (part), 2007)

20.02.210 Circus.

"Circus" means the temporary use of land for performances by persons and/or animals under temporary cover or similar structure, with or without other sideshows. (Ord. 16653 § 2 (part), 2007)

20.02.212 City council.

"City council" means the City Council of the City of El Paso. (Ord. 16653 § 2 (part), 2007)

20.02.214 Clinic.

"Clinic" means a facility for examining and treating patients with medical conditions on an outpatient basis, including ambulatory care or similar medical services that generally require a stay of less than twenty-four hours. (Ord. 16653 § 2 (part), 2007)

20.02.216 Club, private.

"Private club" means buildings and facilities owned or operated by a corporation, association, person or persons for a social, educational or recreational purpose, but not primarily for profit and not primarily to render a service which is customarily carried on as a business. The definition includes civic community and noncommercial private clubs, but does not include a church. (Ord. 16653 § 2 (part), 2007)

20.02.218 Coliseum.

See "Sports arena." (Ord. 16653 § 2 (part), 2007)

20.02.220 Collection facility.

See "Recycling collection facility, large (greater than two thousand square feet)" or "Recycling collection facility, small (less than or equal to two thousand square feet)." (Ord. 16653 § 2 (part), 2007)

20.02.222 Collector street.

"Collector street" means a street designated as a collector on the adopted major thoroughfare plan of the city. (Ord. 16653 § 2 (part), 2007)

20.02.224 College or university.

"College or university" means an institution of higher learning accredited by the state of Texas

and offering a course of studies leading to a degree. (Ord. 16653 § 2 (part), 2007)

20.02.226 Commercial day care center.

"Commercial day care center" means a commercial child care facility that cares for children who are less than fourteen years of age. (Ord. 16653 § 2 (part), 2007)

20.02.228 Commercial equipment repair.

"Commercial equipment repair" means facilities engaged in the repair and maintenance of commercial, industrial or agricultural machinery and equipment. (Ord. 16653 § 2 (part), 2007)

20.02.230 Commercial fueling station.

"Commercial fueling station" means a facility with unattended gasoline, diesel, or other fuel pumps or dispensers, typically operated by the driver of the vehicle being fueled, with automatic billing through a credit card or debit card system. (Ord. 16653 § 2 (part), 2007)

20.02.232 Commercial unit development.

"Commercial unit development" means a platted lot, zoned for commercial, manufacturing or industrial uses, which is further divided into more than one lot and where all additional lots are provided access to a public or private street through a private easement. The access shall be a parcel of land over which a private easement for road purposes, having a minimum paved width of twenty feet, is granted to all owners of property within the commercial unit development. In each instance the instrument creating such private easement, including the original agreement and any changes thereto resulting from the sale, lease or creation of additional lots, shall be held in perpetuity between all signatories, owners or lessees, to the agreement or their successors in interest, shall run with the land and be unseverable, and shall be duly recorded and filed with the office of the county clerk. (Ord. 16653 § 2 (part), 2007)

20.02.234 Commercial vehicle.

"Commercial vehicle" means every vehicle designed, maintained or used primarily for the transportation of property for commercial purposes. (Ord. 16653 § 2 (part), 2007)

20.02.236 Communication utility facility.

See "Public utility facility." (Ord. 16653 § 2 (part), 2007)

20.02.240 Community recreational facility.

"Community recreational facility" means open or enclosed facilities such as swimming pools, tennis courts, other playing surfaces, picnic areas, or other recreational areas, including necessary accessory facilities such as bathhouses, sun or rain shelters, storage buildings, and parking areas, for the exclusive use of members of and to be operated and managed by a private organization or a nonprofit neighborhood organization, association or similar type of neighborhood group. (Ord. 16653 § 2 (part), 2007)

20.02.242 Composting facility.

"Composting facility" means a facility where organic matter derived primarily from off-site is processed by composting or by other means for commercial purposes. Activities of a composting facility may include management, collection, transportation, staging, composting, curing, storage, marketing, or use of compost. (Ord. 16653 § 2 (part), 2007)

20.02.244 Comprehensive plan.

"Comprehensive plan" means the long range plan for the development of the City of El Paso, Texas, reviewed by the city plan commission and adopted by the city council. The comprehensive plan includes the land use plan, major thoroughfare plan, planning area plans, maps and other documents that have been adopted as a part of the comprehensive plan. (Ord. 16653 § 2 (part), 2007)

20.02.246 Computer electronic product assembly.

"Computer electronic product assembly" means establishments primarily engaged in assembling

electronic computers, such as mainframes, personal computers, workstations, laptops, and computer servers; and computer peripheral equipment, such as storage devices, printers, monitors, input/output devices and terminals. (Ord. 16653 § 2 (part), 2007)

20.02.248 Computer product manufacturing.

"Computer product manufacturing" means establishments primarily engaged in manufacturing and/or assembling electronic computers, such as mainframes, personal computers, workstations, laptops, and computer servers; and computer peripheral equipment, such as storage devices, printers, monitors, input/output devices and terminals. (Ord. 16653 § 2 (part), 2007)

20.02.250 Concrete or cement mixing plant.

"Concrete or cement mixing plant" means a temporary use of property for the mixing of concrete. This use is incidental to construction operations during development being conducted on the same tract or subdivision. (Ord. 16653 § 2 (part), 2007)

20.02.252 Condominium.

"Condominium" means a single dwelling unit in a multi-unit dwelling or structure, which is separately owned and which may be combined with an undivided interest in the common areas and facilities of the property. (Ord. 16653 § 2 (part), 2007)

20.02.254 Conservation covenant.

"Conservation covenant" means a voluntary declaration by a property owner of a covenant that is filed of record in the El Paso County Real Property Records on property and is intended to preserve permanently the conservation values of an area.
(Ord. No. 17904, § 1, 11-6-2012)

20.02.256 Contractor equipment (sales, storage, repair and rental).

See "Heavy equipment (sales, storage, repair and rental)." (Ord. 16653 § 2 (part), 2007)

20.02.258 Contractor yard, large (greater than .50 acre).

"Large contractor yard (greater than .50 acre)" means property used to park or store construction materials, vehicles, or equipment used by a building or construction trades contractor. The contractor's business office may be an accessory use to a contractor's yard. Vehicles and equipment used by that contractor may be repaired or maintained in a contractor's yard provided such work is done in an enclosed building or structure. (Ord. 16653 § 2 (part), 2007)

20.02.260 Contractor yard, small (less than or equal to .50 acre).

"Small contractor yard (less than or equal to .50 acre)" means property used to park or store construction materials, vehicles or equipment used by a building or construction trades contractor. The contractor's business office may be an accessory use to a contractor's yard. Vehicles and equipment used by that contractor may be repaired or maintained in a contractor's yard provided such work is done in an enclosed building or structure. (Ord. 16653 § 2 (part), 2007)

20.02.262 Convalescent, nursing or rest home.

"Convalescent, nursing or rest home" means a personal care facility that provides nursing and convalescent care under the direction and supervision of licensed medical personnel for four or more unrelated recipients. (Ord. 16653 § 2 (part), 2007)

20.02.264 Convenience store.

"Convenience store" means a store offering for sale foodstuffs and some household supplies whose gross floor area is no greater than four thousand square feet. (Ord. 16653 § 2 (part), 2007)

20.02.266 Convenience store with gas pumps.

"Convenience store with gas pumps" means a store offering for sale gasoline, foodstuffs and some household supplies whose gross floor area is no

greater than four thousand square feet. (Ord. 16653 § 2 (part), 2007)

20.02.268 Convent.

"Convent" means the dwelling units of a religious order or congregation. (Ord. 16653 § 2 (part), 2007)

20.02.270 Convention center.

"Convention center" means a facility used for service organizations, business and professional conferences, and seminars. (Ord. 16653 § 2 (part), 2007)

20.02.272 Copy shop.

"Copy shop" means a business engaging in the reproduction or photographic impressions through mimeographic, electronic, digital, electrostatic or thermal copy process, whether wet or dry. (Ord. 16653 § 2 (part), 2007)

20.02.273 Corner store.

"Corner store" means a retail, general service, arts design and creation, or eating and drinking establishment. It can include general retail, a food store, or an establishment with an art focus. Cooking on-site is not allowed for corner grocery stores. (Ord. No. 019734, § 1, 5-28-2025)

20.02.274 Correctional facility.

"Correctional facility" means a publicly or privately operated facility housing persons awaiting trial or persons serving a sentence imposed by a court of law. (Ord. 16653 § 2 (part), 2007)

20.02.276 Courier and message service.

"Courier and message service" mean an establishment that provides air, surface, or combined courier delivery services of parcels and messages within or between metropolitan areas or urban centers. (Ord. 16653 § 2 (part), 2007)

20.02.278 Court.

"Court" means an open space that may or may not have direct street access and around which is arranged a single building or a group of related buildings. (Ord. 16653 § 2 (part), 2007)

20.02.279 Credit access business.

"Credit access business" means a credit services organization that obtains for a consumer or assists a consumer in obtaining an extension of consumer credit in the form of a deferred presentment transaction, as defined in Section 393.601 of the Texas Finance Code, or a motor vehicle title loan.
(Ord. No. 18244, § 1, 9-16-2014)

20.02.280 Credit union.

See "Financial institution." (Ord. 16653 § 2 (part), 2007)

20.02.282 Crematorium.

"Crematorium" means a facility with cremation chambers used for the reduction of the human body to ashes by heat. (Ord. 16653 § 2 (part), 2007)

20.02.284 Dairy product processing.

"Dairy product processing" means a facility for the work or processing necessary for the production of dairy products. (Ord. 16653 § 2 (part), 2007)

20.02.286 Dancehall.

"Dancehall" means any place the principal purpose of which is the furnishing of facilities for dancing. (Ord. 16653 § 2 (part), 2007)

20.02.288 Data processing center.

"Data processing center" means a facility where electronic data is processed by employees, including, without limitation, data entry, storage, conversion or analysis, subscription and credit card transaction processing. (Ord. 16653 § 2 (part), 2007)

20.02.288.1 Data processing center (hyperscale).

"Data processing center (hyperscale)" or "data center (hyperscale)" means one or more data cen-

ters and/or other facilities used to house, and in which are operated, maintained and replaced from time to time, computer systems and associated components, such as telecommunications and storage systems, cooling systems, power supplies and systems for managing property performance (including generators and mechanical and electrical yards), and equipment used for the transformation, transmission, distribution and management of electricity (including private substations), internet-related equipment, data communications connections, private communication towers, environmental controls and security devices, structures and site features, as well as certain accessory uses or buildings located on the land and other related or associated uses, buildings or structures such as utility buildings; private utility facilities; office; buildings for support staff; warehousing for logistics, storage and/or other similar uses; cafeteria; guardhouse; diesel storage tanks; fuel storage for emergency generators; water storage tanks; security fencing; and other structures, improvements and appurtenants.
(Ord. No. 019517, § 1, 6-20-2023)

20.02.290 Density.

"Density" means the number of dwelling units that may be constructed per acre, calculated by dividing the site area by minimum required lot area in the underlying zoning district. (Ord. 16653 § 2 (part), 2007)

20.02.292 Detention basin (public/private).

"Detention basin (public/private)" means a facility for the temporary storage of stormwater runoff. (Ord. 16653 § 2 (part), 2007)

20.02.294 Development standard.

"Development standard" means regulations that limit the size, bulk or siting conditions of particular types of buildings or uses located within any designated district. (Ord. 16653 § 2 (part), 2007)

20.02.295 Disabled group dwelling.

"Disabled group dwelling" means a single family dwelling designed and used as a residence by no more than six (6) persons with disabilities and two (2) supervisors, and who are living together as a single housekeeping unit. "Disabled person" has the meaning defined by the Federal Fair Housing Act of 1988, as amended. This use does not include a homeless shelter or halfway house as defined in this Title.
(Ord. No. 18241, § 1, 9-9-2014)

20.02.296 Diesel maintenance facility.

"Diesel maintenance facility" means a facility where locomotives and switch engines are housed, tested, repaired, maintained, inspected, serviced and fueled, as well as all equipment and facilities utilized to accomplish the foregoing activities; also commonly referred to as a roundhouse. (Ord. 16653 § 2 (part), 2007)

20.02.298 Reserved.

Editor's note—Ord. No. 17442, § 2, adopted October 26, 2010, repealed § 20.02.298, which pertained to director and derived from Ord. 16653 § 2 (part), 2007.

20.02.300 Disabled person.

"Disabled person" means a person who has a physical or mental impairment, or both, that substantially limits one or more major life activities. (Ord. 16653 § 2 (part), 2007)

20.02.302 Domestic garden house, toolhouse, playhouse.

"Domestic garden house, toolhouse, playhouse" means a detached accessory structure used as a garden house, tool house, playhouse, or other suitable uses otherwise conforming to zoning district requirements. (Ord. 16653 § 2 (part), 2007)

20.02.304 Domestic storage.

"Domestic Storage" means the storage of any domestic materials, furnishings, appliances, or similar items. Storage that is an accessory use or incidental to the primary use shall only be permitted inside a main building or inside an accessory building. Domestic Storage does not include materials used in an ongoing construction or remodeling project, provided that the project has a valid city permit. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17070, § 1, 2-10-2009)

20.02.306 Drugstore.

See "Pharmacy." (Ord. 16653 § 2 (part), 2007)

20.02.308 Dry cleaning shop (less than or equal to two thousand five hundred square feet).

"Dry cleaning shop (less than or equal to two thousand five hundred square feet)" means a facility with less than or equal to two thousand five hundred square feet of floor area, maintained for the pickup and delivery of dry cleaning and laundry, where the cleaning and laundering is performed at another site. (Ord. 16653 § 2 (part), 2007)

20.02.310 Dry cleaning shop (greater than two thousand five hundred square feet).

"Dry cleaning shop (greater than two thousand five hundred square feet)" means a facility with more than two thousand five hundred square feet of floor area, maintained for the pickup and delivery of dry cleaning and laundry, where the cleaning and laundering is performed at the site. (Ord. 16653 § 2 (part), 2007)

20.02.312 Dry-cleaners (commercial).

"Dry-cleaners (commercial)" means a facility used for cleaning fabrics, textiles, wearing apparel, or articles of any sort. Typical uses include, but are not limited to, laundries, diaper services and linen supply services. (Ord. 16653 § 2 (part), 2007)

20.02.314 Dude ranch.

"Dude ranch" means a resort patterned after a western ranch, featuring camping, horseback riding and other outdoor activities. (Ord. 16653 § 2 (part), 2007)

20.02.316 Duplex (two-family dwelling).

"Duplex (two-family dwelling)" means a building designed or occupied as two dwelling units. (Ord. 16653 § 2 (part), 2007)

20.02.318 Dwelling.

"Dwelling" means a building, structure or portion thereof, designed or used primarily for residential occupancy with culinary and bathroom facilities. A dwelling does not include boats, trailers, motor homes, hotels, motels, motor lodges, boarding or lodging houses. (Ord. 16653 § 2 (part), 2007)

20.02.320 Dwelling, attached single-family.

See "Single-family attached dwelling (atrium, patio, townhouse, condominium)." (Ord. 16653 § 2 (part), 2007)

20.02.322 Dwelling, detached single-family.

See "Single-family detached dwelling." (Ord. 16653 § 2 (part), 2007)

20.02.324 Dwelling, multifamily.

"Multifamily dwelling" means a building, or portion thereof, designed or used for occupancy by three or more families, all living independently of each other in separate dwelling units. (Ord. 16653 § 2 (part), 2007)

20.02.326 Dwelling, resident watchman or property caretaker.

"Resident watchman or property caretaker dwelling" means a residence located on a premises with a principal use and occupied by a caretaker or guard employed on the premises. (Ord. 16653 § 2 (part), 2007)

20.02.328 Dwelling, single-family.

"Single-family dwelling" means a building designed for or occupied exclusively by one family. (Ord. 16653 § 2 (part), 2007)

20.02.330 Dwelling, two-family (duplex).

"Two-family (duplex) dwelling" means a building designed for or occupied exclusively by two families living independently of each other. (Ord. 16653 § 2 (part), 2007)

20.02.332 Dwelling unit.

"Dwelling unit" means a room or group of rooms occupied or designed to be occupied as separate living quarters by a single-family or other group of persons living together as a household or by a person living alone, and having its own permanently installed cooking and sanitary facilities. (Ord. 16653 § 2 (part), 2007)

20.02.334 Easement, private.

"Private easement" means a right-of-use over property of another granted but not dedicated to the city, for the limited use of private land where general use and maintenance of such easement is governed by an agreement which runs with the land and is recorded with the office of the county clerk. A private easement may include certain improved portions of private land which are intended for the general use, enjoyment, convenience and benefit of all signatories, owners or lessees, and their permittees, including, but not limited to, parking areas and spaces, roadways (including roads or lateral access drives), driveways, entrances to dedicated public or private streets, sidewalks, landscaped areas, and truck loading or delivery areas. (Ord. 16653 § 2 (part), 2007)

20.02.336 Electronic product manufacturing or assembly.

"Electronic product manufacturing or assembly" means a facility where electronic devices and systems are manufactured and/or assembled. (Ord. 16653 § 2 (part), 2007)

20.02.337 Emergency shelter.

"Emergency shelter" means a facility that provides temporary housing and appropriate supportive services to more than five persons, exclusive of the support staff, whom have been victims of a crime, and are seeking shelter on an emergency basis. The persons seeking shelter could for example, be victims of domestic violence, sexual assault, or human trafficking. This use does not include a homeless shelter or halfway house as defined in this Title.
(Ord. No. 18241, § 1, 9-9-2014)

20.02.338 Engineering department.

"Engineering department" means the engineering department of the City of El Paso, Texas. (Ord. 16653 § 2 (part), 2007)

20.02.340 Establishment.

"Establishment" means a place of business, including the possessions and employees. (Ord. 16653 § 2 (part), 2007)

20.02.342 Executive secretary of the city plan commission.

"Executive secretary of the city plan commission" means an individual who is selected in accordance with the CPC bylaws and is responsible for the maintenance of all records and research activities undertaken by the commission. (Ord. 16653 § 2 (part), 2007)

20.02.344 Exercise facility (indoor).

"Exercise facility (indoor)" means a facility where members use equipment or space for the purpose of physical exercise, physical training or team sports. (Ord. 16653 § 2 (part), 2007)

20.02.346 Exhibition hall.

See "Convention center." (Ord. 16653 § 2 (part), 2007)

20.02.348 Explosives storage.

"Explosives storage" means a facility where legally approved explosives are stored as mandated by and in conformance with all applicable law. (Ord. 16653 § 2 (part), 2007)

20.02.350 Extermination service.

"Extermination service" means a business with the primary purpose of the eradication or control of rodents, insects, or other pests with incidental storage of pesticides on site. (Ord. 16653 § 2 (part), 2007)

20.02.352 Fabricated metal product manufacturing.

"Fabricated metal product manufacturing" means a facility that transforms metal into intermediate or end products through forging, stamping, bending, forming, and machining, such processes used to shape individual pieces of metal; and other processes, such as welding and assembling, used to join separate parts together. (Ord. 16653 § 2 (part), 2007)

20.02.354 Facility-mount.

See "Personal Wireless Service Facility, facility-mounted." (Ord. 16653 § 2 (part), 2007)

20.02.356 Facility-structure.

"Facility-structure" means a functioning light standard, recreational facility light pole, flag pole or other approved structure. (Ord. 16653 § 2 (part), 2007)

20.02.358 Fairground.

"Fairground" means an open space of land where fairs, exhibitions, or other public events are held. (Ord. 16653 § 2 (part), 2007)

20.02.360 Family.

"Family" means any individual or group of persons related by blood, adoption or marriage, or not more than five unrelated persons living as a single housekeeping unit or home. (Ord. 16653 § 2 (part), 2007)

20.02.362 Farm.

"Farm" means an area that is used for the production of farm crops, such as vegetables, fruit

trees, cotton, dairy products, grain or similar crops and their storage, and the raising of farm animals. Farming does not include the commercial raising of animals or feed yards. (Ord. 16653 § 2 (part), 2007)

20.02.364 Farmer's market.

"Farmer's market" means the offering for sale of primarily fresh agricultural or food products directly to the consumer at an open-air market. (Ord. 16653 § 2 (part), 2007)

20.02.366 Feed dealer.

"Feed dealer" means a facility engaged in the retail sale of animal feeds, fertilizers, agricultural chemicals, pesticides, seeds and other such farm supplies. (Ord. 16653 § 2 (part), 2007)

20.02.368 Feed yard.

"Feed yard" means a lot, yard, corral or other area in which livestock are confined, primarily for the commercial purposes of feeding and growth prior to slaughter. The term does not include areas that are used for raising crops or other vegetation or upon which livestock are allowed to graze. (Ord. 16653 § 2 (part), 2007)

20.02.370 Fence.

"Fence" means a physical barrier of any type of construction used as a boundary or means of protection. (Ord. 16653 § 2 (part), 2007)

20.02.372 Firewood sales.

"Firewood sales" means a location from which firewood is sold. (Ord. 16653 § 2 (part), 2007)

20.02.374 Flea market (swap meet).

"Flea market (swap meet)" means a commercial activity, conducted by multiple retail operators, which is open to the general public and composed of semi-enclosed or outdoor stalls, rooms, stands or spaces used for the purpose of display and sale, exchange or barter of merchandise does not include shopping centers, individual retail operations or sales conducted by a nonprofit or charitable organization. (Ord. 16653 § 2 (part), 2007)

20.02.376 Flea market, indoor.

"Indoor flea market" means a flea market that is located within an enclosed building or buildings, which shall also be subject to the provisions of Section 20.10.430 of this title. (Ord. 16653 § 2 (part), 2007)

20.02.378 Flea market, outdoor.

"Outdoor flea market" means a flea market that is located partially or totally within an unenclosed parcel of land, which shall be subject to the provisions of Section 20.10.430 of this title. (Ord. 16653 § 2 (part), 2007)

20.02.380 Floor area.

"Floor area" means:

1. For nonresidential buildings or buildings containing mixed uses: the sum of the gross horizontal areas of the floors of a building measured from the exterior faces of the exterior walls or from the centerline of walls separating two buildings.

2. For residential buildings: the sum of the gross horizontal areas of the floors of a dwelling, exclusive of garages, atriums, stairwells, open porches and unoccupied basements, cellars, and attics, measured from the exterior faces of the exterior walls. (Ord. 16653 § 2 (part), 2007)

20.02.382 Floor area, gross.

"Gross floor area" means the sum of the gross horizontal areas of the floors of a building measured from the exterior faces of the exterior walls or from the centerline of common walls separating two buildings, but not including unoccupied attics, basements, cellars, stairwells or atriums (above ground level), and exclusive of areas open and unobstructed to the sky. (Ord. 16653 § 2 (part), 2007)

20.02.384 Floor area, gross leasable.

"Gross leasable floor area" means that area utilized for sales, service and warehousing pur-

poses, and excluding public restrooms, enclosed trash storage areas, equipment room areas, and parking areas. (Ord. 16653 § 2 (part), 2007)

20.02.386 Floor area ratio.

"Floor area ratio" means the numerical value obtained by dividing the gross floor area of a building or buildings on any lot by the area of the lot. (Ord. 16653 § 2 (part), 2007)

20.02.388 Food manufacturing, other.

"Other food manufacturing" means a facility not otherwise defined as an animal food manufacturing facility, beverage product manufacturing facility, bread and bakery product manufacturing facility, brewery, dairy product processing facility, seafood product preparation facility, or a sugar and confectionary product manufacturing facility. (Ord. 16653 § 2 (part), 2007)

20.02.390 Food storage locker.

"Food storage locker" means a food locker plant renting only individual lockers for home customer storage of food, and/or sale at retail, delivery of individual home orders and the cutting and packaging of meats or game, but not including slaughtering or eviscerating thereof. (Ord. 16653 § 2 (part), 2007)

20.02.391 Fraternal organization.

"Fraternal organization" means 501(c)3 charitable organization under IRS regulations.
(Ord. No. 17557, § 1, 5-17-2011)

20.02.392 Freeway.

"Freeway" means all U.S. interstate highways and other roadways designated as freeways in the master thoroughfare plan. (Ord. 16653 § 2 (part), 2007)

20.02.394 Freight.

"Freight" means and includes goods, merchandise, substances, materials and commodities of any kind that may be transported or transferred from one place to another by air, rail or motor-carrier. (Ord. 16653 § 2 (part), 2007)

20.02.396 Freight terminal.

"Freight terminal" means a facility or location where the principal use is the loading, unloading, storing, receiving, assembling, dispatching, weighing, consolidating, classifying, switching, distribution, movement or transfer of freight, as well as all equipment and facilities utilized to accomplish the foregoing activities. For purposes of this definition, a railroad right-of-way shall not be considered to be a freight terminal. (Ord. 16653 § 2 (part), 2007)

20.02.398 Frontage.

"Frontage" means:

1. Street Frontage. All of the property on one side of a street between two intersecting streets (crossing or terminating), measured along the line of the street, or, if the street is dead-ended, then all the property abutting on one side between an intersecting street and dead-end of the street;

2. Lot Frontage. The distance for which the front boundary line of the lot and the street line are coincident. (Ord. 16653 § 2 (part), 2007)

20.02.400 Funeral home.

"Funeral home" means a facility for the arrangement of funerals and the preparation of the dead for burial or cremation. (Ord. 16653 § 2 (part), 2007)

20.02.402 Gambling casino.

"Gambling casino" means a facility where legal gambling is conducted. (Ord. 16653 § 2 (part), 2007)

20.02.404 Game court (noncommercial).

"Game court (noncommercial)" means a marked playing area for playing games such as tennis and basketball intended for the exclusive use of the residents and their private guests. (Ord. 16653 § 2 (part), 2007)

20.02.406 Garage, automotive repair.

See "Automotive repair garage." (Ord. 16653 § 2 (part), 2007)

20.02.408 Garage, community.

"Community garage" means an area that provides for parking and refueling of passenger cars only; does not include automotive repair garage. (Ord. 16653 § 2 (part), 2007)

20.02.410 Garage, parking.

"Parking garage" means a building or portion thereof designed or used for the temporary storage of motor-driven vehicles, with or without the retail dispensing, sale or offering for sale of motor fuels, lubricants and tires, or indoor car washing, minor motor adjustment, and flat tire repair when such operations are incidental to the storage of motor-driven vehicles; does not include automotive repair garage or any outside storage. (Ord. 16653 § 2 (part), 2007)

20.02.412 Garage, private.

"Private garage" means a detached accessory building or a portion of a main building on the same lot as a dwelling for the storage of private motor vehicles, boats or trailers of the occupants of the dwellings; includes carport. (Ord. 16653 § 2 (part), 2007)

20.02.414 Garage sale.

"Garage sale (yard, rummage sale)" means the selling of used articles on the premises of a single-family or two-family dwelling, and on the premises of a place of public assembly and at city parks and recreational areas managed by the parks and recreation department. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17360, § 1, 7-20-2010)

20.02.416 Governmental use, building.

"Governmental use, building" means a building or structure owned, operated, or occupied by a governmental agency. (Ord. 16653 § 2 (part), 2007)

20.02.418 Grade.

"Grade" means the slope of any surface specified in percentage terms. (Ord. 16653 § 2 (part), 2007)

20.02.420 Grain and oil seed milling.

"Grain and oil seed milling" means facilities engaged in flour milling and malt manufacturing; starch and vegetable fats and oil manufacturing; and breakfast cereal manufacturing. (Ord. 16653 § 2 (part), 2007)

20.02.421 Greenfield development.

"Greenfield development" means the development of an area that consists of open or wooded land or farmland that has not been previously developed.
(Ord. No. 18688, § 1, 5-30-2017)

20.02.422 Greenhouse (industrial scale).

"Greenhouse (industrial scale)" means a structure partially or wholly enclosed used for the cultivation or protection of plants for commercial production. (Ord. 16653 § 2 (part), 2007)

20.02.423 Greyfield development.

"Greyfield development" means the redevelopment of abandoned or obsolete or underutilized parcels surrounded by substantial existing development.
(Ord. No. 18688, § 1, 5-30-2017)

20.02.424 Grocery.

"Grocery" means a store offering for sale foodstuffs and some household supplies, where the gross floor area is greater than four thousand but less than or equal to twelve thousand square feet. (Ord. 16653 § 2 (part), 2007)

20.02.426 Group residential facility.

"Group residential facility" means an interim or permanent residential facility (as opposed to a lodging or medical treatment facility) that provides room and board to seven or more disabled persons, and who live together as a single housing

unit. "Disabled person" has the meaning defined by the Federal Fair Housing Act of 1988, as amended. This use does not include a homeless shelter or halfway house defined in this title.
(Ord. 16653 § 2 (part), 2007; Ord. No. 18241, § 1, 9-9-2014; Ord. No. 18589, § 1, 11-1-2016)

20.02.428 Guest and/or employee quarters.

"Guest and/or employee quarters" means living quarters within a detached accessory building located on the same premises with the principal building, for use by employees or guests of the occupants of the premises; such quarters having no separate utility meters, and not rented or otherwise used as a separate dwelling. (Ord. 16653 § 2 (part), 2007)

20.02.429 Halfway house.

"Halfway house" means a facility for the housing, rehabilitation, and training of persons on probation, parole, or early release from correctional institutions, or other persons found guilty of criminal offenses.
(Ord. No. 18218, § 1, 7-29-2014)

20.02.430 Harvesting crops.

"Harvesting crops" means the act or process of gathering in a crop. (Ord. 16653 § 2 (part), 2007)

20.02.432 Heavy equipment.

"Heavy equipment" means all motor-driven equipment with a manufacturer's rated carrying capacity exceeding two tons, not otherwise herein defined. (Ord. 16653 § 2 (part), 2007)

20.02.434 Heavy equipment (sales, storage, repair and rental).

"Heavy equipment (sales, storage, repair and rental)" means a facility where heavy equipment is sold, stored, repaired or rented. (Ord. 16653 § 2 (part), 2007)

20.02.436 Heavy truck.

"Heavy truck" means every truck with a manufacturer's rated carrying capacity exceeding two tons. (Ord. 16653 § 2 (part), 2007)

20.02.438 Heavy truck (sales, storage, repair and rental).

"Heavy truck (sales, storage, repair and rental)" means a facility for the display, sale, storage, service, repair, or rental of heavy trucks. (Ord. 16653 § 2 (part), 2007)

20.02.440 Hedge.

"Hedge" means a natural shrubbery planted in a compact line serving as a fence, wall or boundary. (Ord. 16653 § 2 (part), 2007)

20.02.442 Heliport.

"Heliport" means a type of passenger terminal that is used to accommodate all phases of operation of helicopters, either at ground level or elevated on a structure. (Ord. 16653 § 2 (part), 2007)

20.02.444 Helistop.

"Helistop" means a type of passenger terminal used, either at ground level or elevated on a structure, for the storing, landing and takeoff of a single helicopter for the purpose of loading and unloading passengers, but does not afford refueling, maintenance, repair or other facilities. (Ord. 16653 § 2 (part), 2007)

20.02.446 Historic landmark.

"Historic landmark" means a building, structure, site district, area or land of architectural, historical, archaeological or cultural importance or value, which the city council determines shall be protected, enhanced and preserved in the interest of the culture, prosperity, education and general welfare of the people. (Ord. 16653 § 2 (part), 2007)

20.02.448 Historic landmark commission (HLC).

"Historic landmark commission" means the historic landmark commission of the City of El Paso, Texas. (Ord. 16653 § 2 (part), 2007)

20.02.450 Home child care facility.

"Home child care facility" means a facility which at any time provides care for no more than a total of twelve children who are less than fourteen years of age, of which the caretaker's own children shall also be counted in the total number allowed. (Ord. 16653 § 2 (part), 2007)

20.02.452 Home improvement center.

"Home improvement center" means a facility for the sale of home, lawn, and garden supplies, brick, lumber, and other similar building materials. (Ord. 16653 § 2 (part), 2007)

20.02.454 Home occupation.

"Home occupation" means a permitted occupation carried on primarily within a home where such use is clearly incidental and secondary to the principal use of the property as a dwelling, and meeting the additional requirements of Section 20.10.270. (Ord. 16653 § 2 (part), 2007)

20.02.455 Homeless shelter.

"Homeless shelter" means a lodging facility that provides lodging with or without meals, or lodging and meals, on a temporary basis to more than five persons, who are homeless, and are not related by blood, marriage, or adoption to the head of the household or the owner or operator of the facility; whether or not the facility is operated for profit or charges for the services it offers. (Ord. No. 18241, § 1, 9-9-2014)

20.02.456 Hospital.

"Hospital" means an institution providing health services, primarily for in-patients, and medical or surgical care of the sick or injured, including as an integral part of the institution, such related facilities as laboratories, out-patient departments, training facilities, central service facilities and staff offices. (Ord. 16653 § 2 (part), 2007)

20.02.458 Hotel, motel.

"Hotel, motel" means a building in which lodging or boarding and lodging are provided for persons, primarily transient, and offered to the public for compensation and in which room assignments are made through a lobby or office supervised by a person in charge at all hours. As such, it is open to the public in contrast to a boarding, rooming or lodging house, or multiple-family dwelling, which are herein separately defined. A hotel or motel may include restaurants, taverns or club rooms, public banquet halls, ballrooms and meeting rooms. (Ord. 16653 § 2 (part), 2007)

20.02.460 Household goods repair.

"Household goods repair" means a facility for the repair of household and home equipment, including appliances, lawnmowers, power tools, and similar items. (Ord. 16653 § 2 (part), 2007)

20.02.462 Household product manufacturing.

"Household product manufacturing" means an establishment engaged in the production of household products. (Ord. 16653 § 2 (part), 2007)

20.02.464 HUD-code manufactured home (manufactured home).

"HUD-code manufactured home (manufactured home)" means a structure constructed on or after June 15, 1976, according to the rules of the United States Department of Housing and Urban Development, transportable in one or more sections, which, in the traveling mode, is eight body feet or more in width or forty body feet or more in length, or, when erected on site, is three hundred twenty or more square feet, and which is built on a permanent chassis and designed to be used as a dwelling with or without a permanent foundation when connected to the required utilities, and includes the plumbing, heating, air-conditioning, and electrical systems. The term does not include a recreational vehicle as defined by 24 C.F.R. Section 3282.8(g). (Ord. 16653 § 2 (part), 2007)

20.02.466 HUD-code manufactured home park (manufactured home park).

"HUD-code manufactured home park (manufactured home park)" means a parcel of ground,

not a part of a manufactured home subdivision, providing sites for the parking or location of one or more occupied manufactured homes, travel trailers, recreation vehicles and similar units. (Ord. 16653 § 2 (part), 2007)

20.02.468 Indoor entertainment and recreational uses.

"Indoor entertainment and recreational uses" means an establishment or place of business primarily engaged in the provision of entertainment or recreation for participants or spectators. Permitted uses include meeting halls, bingo parlors, motion picture theaters, bowling alleys, billiard halls, dance studios, skating rinks, indoor tennis and racquetball courts, and health and physical fitness studios. (Ord. 16653 § 2 (part), 2007)

20.02.470 Industrialized home.

"Industrialized home" means a residential structure:

1. Designed for the occupancy of one or more families;

2. Constructed in one or more modules or constructed using one or more modular components built at a location other than the permanent site;

3. Designed to be used as a permanent residential structure when the module or the modular component is transported to the permanent site and erected or installed on a permanent foundation system; and

4. Outfitted with plumbing, heating, air conditioning, and electrical systems.

"Industrialized home" does not mean:

1. A residential structure that exceeds three stories or forty-nine feet in height as measured from the finished grade elevation at the building entrance to the peak of the roof;

2. Housing constructed of a sectional or panelized system that does not use a modular component; or

3. A ready-built home constructed in a manner in which the entire living area is contained in a single unit or section at a temporary location for the purpose of selling and moving the home to another location. (Ord. 16653 § 2 (part), 2007)

20.02.471 Infill development.

"Infill development" means any development activity, including but not limited to new construction, renovation, addition, rehabilitation or redevelopment, associated with vacant or underutilized parcels within existing, largely developed urban areas.
(Ord. No. 18688, § 1, 5-30-2017)

20.02.472 Institution, educational.

"Educational institution" means a school offering graded academic or vocational instruction meeting the requirements of state compulsory education laws, or a college or university giving general instruction equivalent to the standards prescribed by local and state public educational authorities. May be public or private. Does not include trade schools, dance schools, karate schools, riding academies, nursery schools and similar commercial operations. (Ord. 16653 § 2 (part), 2007)

20.02.474 Institution, philanthropic.

"Philanthropic institution" means a nonprofit institution existing for the sole purpose of promoting the welfare of mankind by works of charity, including orphanages, homes for unwed mothers, and similar institutions of this general nature. Does not include secret societies, fraternal organizations, social or private clubs, which may be incidentally engaged in charitable or philanthropic work. (Ord. 16653 § 2 (part), 2007)

20.02.476 Interchange.

"Interchange" means the intersection of two public rights-of-way not on the same grade (measured along the interstate or freeway from the nearest point of the beginning or ending of pavement widening at the exit from or entrance to the main traveled way). (Ord. 16653 § 2 (part), 2007)

20.02.478 Interlocking tower.

"Interlocking tower" means the building, equipment or facilities used in the operation of the arrangement of signals and signal appliances for

the movement of rail locomotives and rolling stock. (Ord. 16653 § 2 (part), 2007)

20.02.480 Intermediate care facility.

See "Group home." ["Group residential facility."] (Ord. 16653 § 2 (part), 2007)

20.02.482 Intermodal facility.

"Intermodal facility" means a freight terminal where freight is moved by two or more different modes of transport within the same facility. (Ord. 16653 § 2 (part), 2007)

20.02.484 Intersection.

"Intersection" means the junction of any two public rights-of-way crossing at grade. (Ord. 16653 § 2 (part), 2007)

20.02.486 Junk motor vehicle.

"Junk motor vehicle" means any motor vehicle without current registration (license) or safety inspection sticker and/or unable to travel on public streets or highways legally under its own power. (Ord. 16653 § 2 (part), 2007)

20.02.488 Kennel.

"Kennel" means any premises on which animals are kept or housed for conducting the business of buying, selling, breeding, grooming, training or boarding of animals for compensation. The adoption of animals may be permitted as a part of a kennel operation. However, for the purpose of setbacks and other specific restrictions, a retail pet shop shall not be classified as a kennel. (Ord. 16653 § 2 (part), 2007)

20.02.490 Kitchen.

"Kitchen" means any room or facility designed to be used or maintained for the cooking or preparation of food. (Ord. 16653 § 2 (part), 2007)

20.02.492 Landmark.

"Landmark" means all buildings, structures or sites so identified by a national, state or local historic register, or located within any national, state or local historic district. (Ord. 16653 § 2 (part), 2007)

20.02.494 Landscape planting area.

"Landscape planting area" means an area that is devoted and maintained to the growing of grass and other plant material or by the use of organic or inorganic mulch. (Ord. 16653 § 2 (part), 2007)

20.02.496 Laundromat (less than or equal to five thousand square feet).

"Laundromat (less than or equal to five thousand square feet)" means a building or part thereof with less than or equal to five thousand square feet where customer's clothes or other household articles are washed and dried in self-service machines, and may also be ironed but no dry cleaning services are offered. (Ord. 16653 § 2 (part), 2007)

20.02.498 Laundromat (greater than five thousand square feet).

"Laundromat (greater than five thousand square feet)" means a building or part thereof with more than five thousand square feet where customer's clothes or other household articles are washed and dried in self-service machines, and may also be ironed but no delivery service is offered. (Ord. 16653 § 2 (part), 2007)

20.02.500 Laundry.

"Laundry" means a building or part thereof, other than a laundromat, where clothes and other articles are washed, dried and ironed. (Ord. 16653 § 2 (part), 2007)

20.02.502 Laundry (commercial).

"Laundry (commercial)" means a facility engaged in the business of providing laundry services for institutions, businesses or other such establishments. (Ord. 16653 § 2 (part), 2007)

20.02.504 Legal description.

"Legal description" means a description of a parcel of land indicating the lot or tract number, block number, and name of officially approved

subdivision which has been recorded with the county clerk; or a metes and bounds description of a parcel of land and amount of land included, certified as a complete and proper legal description by an architect, or a professional engineer with a civil engineering degree, or a surveyor. (Ord. 16653 § 2 (part), 2007)

20.02.506 Light truck.

"Light truck" means every truck or van with a manufacturer's rated carrying capacity not to exceed two tons. (Ord. 16653 § 2 (part), 2007)

20.02.508 Light truck (sales, service, storage and rental).

See "Automobile (sales, service, storage and rental)." (Ord. 16653 § 2 (part), 2007)

20.02.510 Liquified petroleum gas (storage and dispensing).

"Liquified petroleum gas (storage and dispensing)" means a facility or person that engages in activities where liquified petroleum gas is stored and/or sold for which a license is required from the railroad commission of Texas in accordance with state law. (Ord. 16653 § 2 (part), 2007)

20.02.512 Livestock auction.

"Livestock auction" means a facility where livestock are received and sold to buyers on an auction basis. (Ord. 16653 § 2 (part), 2007)

20.02.514 Livestock grazing.

See "Pasturage (small or large animals)." (Ord. 16653 § 2 (part), 2007)

20.02.516 Live-work flex unit.

"Live-work flex unit" means a building with one or more dwelling units and one principal commercial use that is owned and/or operated by one of the residents. (Ord. 16653 § 2 (part), 2007)

20.02.518 Loading berth.

"Loading berth" means a space within a building or on the premises providing for the standing, loading or unloading, and together with apron space for maneuvering of vehicles, trucks and semi-tractor trailers. (Ord. 16653 § 2 (part), 2007)

20.02.520 Loading space.

"Loading space" means an off-street space on the same lot with a principal building, or contiguous to a group of buildings, for the temporary parking of commercial vehicles while loading or unloading. (Ord. 16653 § 2 (part), 2007)

20.02.522 Loading spaces (serving another property).

"Loading spaces (serving another property)" means loading spaces on property that is located on a separate site from the property requiring the loading spaces. (Ord. 16653 § 2 (part), 2007)

20.02.524 Lodge.

"Lodge" means a facility used as the meeting place of a fraternal organization. A lodge may also be used for various temporary fund-raising activities to support charitable or philanthropic works incidental to, and carried out by, the organization, to include the rental of the lodge for temporary events, provided that if such use is no longer incidental to the primary use as a meeting place, then a special permit shall be required for such temporary use. (Ord. 16653 § 2 (part), 2007) (Ord. No. 17557, § 2, 5-17-2011)

20.02.526 Lodging house.

"Lodging house" means a dwelling other than a hotel, motel or tourist home, where, for compensation and by prearrangement, lodging, meals, or lodging and meals, are provided to more than five persons unrelated by blood or marriage to the owner or operator; including residential fraternity and sorority houses. (Ord. 16653 § 2 (part), 2007) (Ord. No. 18241, § 1, 9-9-2014)

20.02.528 Lot.

"Lot" means a parcel of land having frontage upon an accessway and shown either on a plat of record or described by metes and bounds; pro-

vided, however, that access may be provided through a private easement. (Ord. 16653 § 2 (part), 2007)

20.02.530 Lot, corner.

"Corner lot" means a lot located at the intersection of two or more streets. (Ord. 16653 § 2 (part), 2007)

20.02.532 Lot depth.

"Lot depth" means the distance between the front and rear lot lines, measured as follows:

1. Where the lot lines are straight, from the midpoints thereof;

2. Where the lot line curves in or out, from the midpoint of the arc between the side property lines;

3. Where there is no rear lot line, the lot depth shall be the length of a straight line connecting the bisecting point of the front lot line and the intersection of the two sidelines. (Ord. 16653 § 2 (part), 2007)

20.02.534 Lot, double frontage.

"Double frontage lot" means any lot having frontage on two streets which are nonintersecting or which intersect at an angle of less than or equal to seventy degrees with reference to the lot, as distinguished from a corner lot. (Ord. 16653 § 2 (part), 2007)

20.02.536 Lot, interior.

"Interior lot" means any lot having frontage on one street only. (Ord. 16653 § 2 (part), 2007)

20.02.538 Lot, panhandle.

"Panhandle lot" means a lot with frontage and access provided by way of a narrow projection of the lot to the street. (Ord. 16653 § 2 (part), 2007)

20.02.540 Lot, triple frontage.

"Triple frontage lot" means a corner lot having frontage on three streets. (Ord. 16653 § 2 (part), 2007)

20.02.542 Lot of record.

"Lot of record" means a lot that is a part of a subdivision or plat that has been recorded in the real property records of the county clerk, or a lot described by metes and bounds, the description of which has been recorded in the real property records of the county clerk. (Ord. 16653 § 2 (part), 2007)

20.02.544 Lot width, average.

"Average lot width" means the lot area divided by the lot depth. (Ord. 16653 § 2 (part), 2007)

20.02.546 Machinery manufacturing.

"Machinery manufacturing" means a facility where heavy equipment is manufactured, produced or assembled. (Ord. 16653 § 2 (part), 2007)

20.02.548 Main track.

"Main track" means a track, other than an auxiliary track, within railroad right-of-way which extends through railyards and between stations, upon which trains are operated by timetable or track warrant, or both, or the use of which is governed by a signal system. (Ord. 16653 § 2 (part), 2007)

20.02.550 Major utility facility.

See "Public utility facility." (Ord. 16653 § 2 (part), 2007)

20.02.552 Manufactured home (single-family dwelling).

See "HUD-code manufactured home." (Ord. 16653 § 2 (part), 2007)

20.02.554 Manufacturer's rated carrying capacity.

"Manufacturer's rated carrying capacity" means the nominal or commonly used carrying capacity in tons assigned by the manufacturer to a truck or piece of equipment, as distinguished from the actual load carrying capacity. (Ord. 16653 § 2 (part), 2007)

20.02.556 Manufactured home (sales, display and repair).

"Manufactured home (sales display and repair)" means a facility for the sales, display and repair of manufactured housing. (Ord. 16653 § 2 (part), 2007)

20.02.558 Marquee.

"Marquee" means a canopy-type or covered structure projecting from and supported by a building, when such canopy or covered structure extends beyond the building, building line or property line. (Ord. 16653 § 2 (part), 2007)

20.02.559 Masonry wall.

"Masonry wall" means a vertical barrier intended to provide visual screening and privacy constructed primarily of any combination of durable rock, brick or concrete. For purposes of this Title, a masonry wall may include decorative elements of wrought-iron.
(Ord. No. 18461, § 1, 1-12-2016)

20.02.560 Massage establishment.

"Massage establishment" means a place of business that advertises massage therapy or offers massage therapy as a service. "Massage therapy" means the manipulation of soft tissue by hand or through a mechanical or electrical apparatus for the purpose of body massage and includes effleurage (stroking), petrissage (kneading), tapotement (percussion), compression, vibration, friction, nerve strokes, and Swedish gymnastics. The terms "massage," "therapeutic massage," "massage technology," "myotherapy," "body massage," "body rub," or any derivation of those terms are synonyms for "massage therapy." (Ord. 16653 § 2 (part), 2007)

20.02.562 Master zoning plan.

"Master zoning plan" means the conceptual site plan and narrative proposal submitted with an application for a mixed-use zoning district (RMU, GMU or IMU), that, if approved by city council, sets out the zoning regulations for the mixed-use district. The master zoning plan must show the proposed uses, lot sizes, setbacks, height of buildings and design standards for the entire development. (Ord. 16653 § 2 (part), 2007)

20.02.564 Mausoleum.

"Mausoleum" means a structure for the entombment of the dead above ground. (Ord. 16653 § 2 (part), 2007)

20.02.566 Medical lab.

"Medical lab" means a facility equipped for medical testing and analysis. (Ord. 16653 § 2 (part), 2007)

20.02.568 Medical treatment facility.

See "Clinic." (Ord. 16653 § 2 (part), 2007)

20.02.570 Miniature golf course.

"Miniature golf course" means a theme-oriented recreational facility where the principal activity is golf played on a miniature course, and which may provide auxiliary uses such as food service and amusement game machines. (Ord. 16653 § 2 (part), 2007)

20.02.572 Minor utility facility.

See "Public utility facility." (Ord. 16653 § 2 (part), 2007)

20.02.574 Mobile home.

"Mobile home" is defined by the Texas Manufactured Housing Standards Act as a structure constructed before 1976 and regulated by the Texas Department of Housing and Community Affairs. (Ord. 16653 § 2 (part), 2007)

20.02.576 Mobile home park.

See "HUD-code manufactured home park." (Ord. 16653 § 2 (part), 2007)

20.02.578 Mobile home (sales, display and repair).

See "Manufactured home (sales, display and repair)." (Ord. 16653 § 2 (part), 2007)

20.02.580 Mobile home space.

"Mobile home space" means a lot or site within an approved mobile home park designed for the accommodation of a mobile home unit. (Ord. 16653 § 2 (part), 2007)

20.02.582 Mobile office/storage unit (related to construction operations).

"Mobile office/storage unit (related to construction operations)" means a temporary mobile or relocatable office or storage unit located on a site incidental to construction operations during development being conducted on the same tract or subdivision, and which is removed upon completion of construction. (Ord. 16653 § 2 (part), 2007)

20.02.584 Mobile office/storage unit (related to sales or rental).

"Mobile office/storage unit (related to sales or rental)" means a temporary mobile or relocatable office unit for use as sales or rental office for an approved real estate development or subdivision. (Ord. 16653 § 2 (part), 2007)

20.02.586 Mobile service unit.

"Mobile service unit" means a self-contained and self-powered vehicle that is equipped to operate as an extension of a licensed fixed base automobile and light truck lubrication business or as a mobile refueling station, in zoning districts where the fixed base business equivalent is a permitted use. All mobile service units must obtain an operator permit from the city. Mobile service units are additionally subject to all city code provisions including development standards in Section 20.10.365 and other applicable federal, state or local regulations. (Ord. 16653 § 2 (part), 2007)

20.02.588 Mobile recycling unit.

"Mobile recycling unit" means an automobile, truck, trailer, van or other commercial vehicle, which is used for the collection of recyclable material. A mobile recycling unit also means the bins, boxes or containers transported by trucks, vans or trailers and used for the collection of recyclable material. (Ord. 16653 § 2 (part), 2007)

20.02.590 Model dwelling.

"Model dwelling" means a completed unoccupied housing unit located in a subdivision and used for the sole purpose of displaying and selling similar units within the same subdivision and used for this purpose only until the units within said area are sold. (Ord. 16653 § 2 (part), 2007)

20.02.592 Mortuary.

See "Funeral home." (Ord. 16653 § 2 (part), 2007)

20.02.594 Motel.

See "Hotel." (Ord. 16653 § 2 (part), 2007)

20.02.596 Motor-carrier.

"Motor-carrier" means a carrier engaged in transporting, by motor vehicles on public/private streets and highways, freight or passengers through local, intrastate or interstate transportation. (Ord. 16653 § 2 (part), 2007)

20.02.598 Motor-carrier terminal.

"Motor-carrier terminal" means an area and buildings where cargo is stored and where trucks, including tractors and trailer units, load and unload cargo for transshipment or distribution on a regular basis, and which may include facilities for the temporary storage of loads prior to shipment and facilities for the maintenance of transport vehicles. (Ord. 16653 § 2 (part), 2007)

20.02.600 Motorcycle.

"Motorcycle" means every motor vehicle having a saddle for the use of the rider and designed to travel on not more than three wheels in contact with the ground, but excluding a tractor. (Ord. 16653 § 2 (part), 2007)

20.02.602 Motor vehicle.

"Motor vehicle" means every vehicle that is self-propelled. (Ord. 16653 § 2 (part), 2007)

20.02.604 Motor vehicle repair, major.

"Major motor vehicle repair" means an area or building which may provide services of major automotive repair, automotive tune-up or lubrication service; and allows the repair, rebuilding or reconditioning of engines, motor vehicles and trailers; including painting of vehicles. (Ord. 16653 § 2 (part), 2007)

20.02.606 Motor vehicle repair, minor.

"Minor motor vehicle repair" means an area or building that may provide the services of minor automotive repair, tune-up or lubrication service and/or an automotive service station and may include the following activities:

1. Wheel alignments and mounting;
2. Tire sales, service, mounting and balancing;
3. Maintenance on brake system;
4. Emergency road service;
5. Inspections. (Ord. 16653 § 2 (part), 2007)

20.02.608 Motor vehicle storage yard.

"Motor vehicle storage yard" means an area located on the property of a "motor vehicle repair, major" facility that has a storage area for temporary storage of motor vehicles that are inoperative and waiting for parts or unsafe to operate. This area is in addition to the parking spaces required for customers and employees. (Ord. 16653 § 2 (part), 2007)

20.02.610 Motor vehicle wrecking yard.

See "Automobile wrecking yard." (Ord. 16653 § 2 (part), 2007)

20.02.612 Moving and storage facility.

"Moving and storage facility" means a facility that provides specialized local or long-distance trucking of household, institutional, or commercial furniture and equipment. Incidental packing and storage activities are often provided. (Ord. 16653 § 2 (part), 2007)

20.02.614 Music store.

"Music store" means an establishment that engages in retailing prerecorded audio and video tapes, compact discs (CDs), digital video discs (DVDs), phonograph records, musical instruments, sheet music and related supplies. (Ord. 16653 § 2 (part), 2007)

20.02.616 Neighborhood fair, carnival.

"Carnival neighborhood fair" means the temporary use of land with various rides for entertainment and booths for the sale of food and drink. (Ord. 16653 § 2 (part), 2007)

20.02.618 Nonconforming lot.

"Nonconforming lot" means an otherwise legally platted lot that does not conform to the minimum area or dimensional requirements of this title for the zoning district in which it is located either at the effective date of the ordinance codified herein or as a result of subsequent amendments to such ordinance. (Ord. 16653 § 2 (part), 2007)

20.02.620 Nonconforming structure.

"Nonconforming structure" means an otherwise legal building or structure that does not conform with the lot area, yard, height, fence or screening wall, lot coverage, or other area regulations of this title, for the zoning district in which it is located, either at the effective date of the ordinance codified herein or as a result of subsequent amendments to such ordinance. (Ord. 16653 § 2 (part), 2007)

20.02.622 Nonconforming use.

"Nonconforming use" means the otherwise legal use of a building or structure or of a tract of land that does not conform to the use regulations of this title for the zoning district in which it is located, either at the effective date of the ordinance codified herein or as a result of subsequent amendments to such ordinance. (Ord. 16653 § 2 (part), 2007)

20.02.624 Nonionizing electromagnetic radiation (NIER) report.

"Nonionizing electromagnetic radiation (NIER) report" means a technical report containing information about the amount of electromagnetic radiation emissions generated by radio broadcast or telecommunication antenna installation. The report shall be in a format acceptable to the Federal Communications Commission (FCC) and shall include:

1. Name and address of the owner of the transmitter and antenna;

2. Location of the antenna, including address, geographic coordinates and height above the ground;

3. Manufacturer, type and model of antenna and antenna radiation patterns, to the extent they are available;

4. Frequency and output of transmitter and direction of transmission;

5. Power input to antenna;

6. Type of modulation and class of service. (Ord. 16653 § 2 (part), 2007)

20.02.626 Nonmetallic mineral product manufacturing.

"Nonmetallic mineral product manufacturing" means a facility that transforms mined or quarried nonmetallic minerals, such as sand, gravel, stone, clay, and refractory materials, into products for intermediate or final consumption. Processes used include grinding, mixing, cutting, shaping, and honing. (Ord. 16653 § 2 (part), 2007)

20.02.628 Nude live entertainment club.

"Nude live entertainment club" means any establishment that offers nude live entertainment. "Nude live entertainment" means live human dancers, models, actors, actresses, players, waitresses or waiters exposing "specified anatomical areas," as that term is defined in this Code, to the view of patrons. (Ord. 16653 § 2 (part), 2007)

20.02.630 Nursing home.

See "Convalescent home." (Ord. 16653 § 2 (part), 2007)

20.02.632 Nursery, greenhouse.

"Greenhouse nursery" means a facility for the storage of live trees, shrubs, or plants offered for retail sale on the premises. (Ord. 16653 § 2 (part), 2007)

20.02.634 Nursery (industrial-scale).

"Nursery (industrial-scale)" means a wholesale business whose principal activity is the growing and selling of plants. (Ord. 16653 § 2 (part), 2007)

20.02.636 Office, administrative and manager's.

See "Office, business." (Ord. 16653 § 2 (part), 2007)

20.02.638 Office, business.

"Business office" means a facility or portion of a building in which the administrative activities, record keeping, clerical work and other similar affairs of a business, professional service, industry, or government are conducted. A business office shall include a psychologist's or psychiatrist's office. (Ord. 16653 § 2 (part), 2007)

20.02.640 Office, medical.

"Medical office" means a facility or portion of a building designed and used for the diagnosis and treatment of human patients that does not include overnight care facilities; includes physician's and other medical offices. For a psychologist's or psychiatrist's office, see "Office, business." (Ord. 16653 § 2 (part), 2007)

20.02.642 Office, professional.

See "Office, business." (Ord. 16653 § 2 (part), 2007)

20.02.644 Office warehouse.

"Office warehouse" means a facility that has the combined uses of office/showroom and warehouse for the primary purpose of retail and wholesale trade, display, and distribution of products. (Ord. 16653 § 2 (part), 2007)

20.02.646 Open pit mining.

"Open pit mining" is essentially the same as strip mining, except that open pit mining is typically deeper with less horizontal area than strip mining. (Ord. 16653 § 2 (part), 2007)

20.02.648 Open space.

"Open space" means an area that is intended to provide light and air and is designed for either scenic or recreational purposes. Open space may include, but is not limited to, lawns, decorative planting, desert areas, foothills, walkways, active and passive recreation areas, hike and bike trails, equestrian trail nodes, picnic benches and shelters, scenic lookouts, viewing shelters, shade structures, playgrounds, fountains, river banks, swimming pools, wooded areas and water courses, and restrooms. The calculation of required open space shall not include driveways, parking lots or other surfaces designed or intended for vehicular travel or storage. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17490, § 1, 1-25-2011)

20.02.650 Open space, common.

"Common open space" means private land in a subdivision in which the owners have an undivided interest and which is specifically developed for common recreational areas, or designated for the general use and enjoyment of the occupants of the development. (Ord. 16653 § 2 (part), 2007)

20.02.651 Natural open space.

"Natural open space" (NOS) means a zoning district that includes areas consisting of primarily natural and undisturbed landscape set aside for the purpose of preservation or conservation of natural resources, habitats, wildlife and/or features or scenic/aesthetic values. This zoning district is appropriate for areas consisting of, but not limited to, natural vegetation, arroyos, mountains and other geologic landforms, historic/cultural sites, water bodies/wetlands/riparian areas, wildlife habitats, hillside slopes, desert flatlands, ridgelines, scenic buffer areas, trailheads and trails. In addition to the preservation and conservation of land, the NOS zoning district is intended, but not required to allow for passive recreational uses, including such activities as mountain and recreational biking, hiking, jogging, walking, horseback riding, nature study or observation, and photography, as well as other activities that do not adversely affect the environmental characteristics of the district. Activities shall not include motorized activity except for maintenance, emergency services or legal access agreements or as allowed on streets, parking lots, or railroad right-of-way.
(Ord. No. 17306, § 1, 4-6-2010; Ord. No. 17490, § 2, 1-25-2011; Ord. No. 18531, § 1, 6-28-2016)

20.02.652 Open space, private.

"Private open space" means the part of a lot owned by a person or entity in a planned mountain development specifically designated as open area to remain undisturbed in its natural state. (Ord. 16653 § 2 (part), 2007)

20.02.654 Open space, public.

"Public open space" means the land dedicated to and accepted by the City of El Paso that is specifically designated as open area to remain undisturbed in its natural state. (Ord. 16653 § 2 (part), 2007)

20.02.656 Operator, flea market.

"Flea market operator" means the property owner or his agent/representative who engages in the business of a flea market by renting, leasing or otherwise securing spaces, stalls, rooms or stands from which merchandise may be sold, offered or exhibited for sale by vendors. (Ord. 16653 § 2 (part), 2007)

20.02.658 Optical dispensary.

"Optical dispensary" means a facility that retails prescription or nonprescription eyeglasses and contact lenses. This category also includes establishments that provide customer fitting or lens grinding in addition to eyeglasses. (Ord. 16653 § 2 (part), 2007)

20.02.660 Orphanage, shelter.

"Shelter orphanage" means an institution for the care of orphans. (Ord. 16653 § 2 (part), 2007)

20.02.662 Other retail establishment (high-volume).

"Other retail establishment (high-volume)" means establishments engaged in high volume selling of goods or merchandise to the general public for personal or household consumption and rendering services incidental to the sale of such goods. Characteristics of a retail trade establishment are:

1. The establishment is usually a place of business and is engaged in activity to attract the general public to buy;

2. The establishment buys, receives and sells merchandise;

3. The establishment may process some of the products, but such processing is incidental or subordinate to the selling activities;

4. The establishment sells to customers for their own personal or household use.

This definition does not include other uses that are specifically listed in this title. (Ord. 16653 § 2 (part), 2007)

20.02.664 Other retail establishment (low-volume).

"Other retail establishment (low-volume)" means establishments engaged in low volume selling of goods or merchandise to the general public for personal or household consumption and rendering services incidental to the sale of such goods. Characteristics of retail trade establishments are:

1. The establishment is usually a place of business and is engaged in activity to attract the general public to buy;

2. The establishment buys, receives and sells merchandise;

3. The establishment may process some of the products, but such processing is incidental or subordinate to the selling activities;

4. The establishment sells to customers for their own personal or household use.

This definition does not include other uses that are specifically listed in this title. (Ord. 16653 § 2 (part), 2007)

20.02.666 Other wholesale establishment (high-volume).

"Other wholesale establishment (high-volume)" means establishments engaged in high volume selling of merchandise to retailers, to industrial, commercial, institutional or professional business users or to other wholesalers. This definition does not include other uses that are specifically listed in this title. (Ord. 16653 § 2 (part), 2007)

20.02.668 Other wholesale establishment (low-volume).

"Other wholesale establishment (low-volume)" means establishments engaged in low volume selling of merchandise to retailers, to industrial, commercial, institutional or professional business users or to other wholesalers. This definition does not include other uses that are specifically listed in this title. (Ord. 16653 § 2 (part), 2007)

20.02.670 Package liquor store.

"Package liquor store" means a store that sells bottled or canned alcoholic beverages for consumption off the premises. (Ord. 16653 § 2 (part), 2007)

20.02.672 Paint ball center (indoor).

"Paint ball center (indoor)" means a facility used for the discharging of paint ball guns, and which is completely enclosed within a building or structure. (Ord. 16653 § 2 (part), 2007)

20.02.674 Paint ball center (outdoor).

"Paint ball center (outdoor)" means land used for the discharging of paint ball guns. (Ord. 16653 § 2 (part), 2007)

20.02.676 Parking lot.

"Parking lot" means an area, not including a street or alley right-of-way, containing one or more parking spaces for motor vehicles, designed in accordance with the requirements of Chapter 20.14,

and intended as an accommodation for patrons, customers, and employees, either with or without a charge for such accommodation. (Ord. 16653 § 2 (part), 2007)

20.02.678 Parking reduction.

"Parking reduction" means the reduction of the amount of off-street parking required for a specific use or use category, as approved by city council. (Ord. 16653 § 2 (part), 2007)

20.02.680 Parking space, off-street.

"Off-street parking space" means an area, not including a street or alley right-of-way, permanently reserved for the temporary storage of one motor vehicle, meeting all of the requirements of Chapter 20.14. (Ord. 16653 § 2 (part), 2007)

20.02.682 Parking spaces (serving another property).

"Parking spaces (serving another property)" means parking spaces on property which is located on a separate site from the property requiring the off-street parking spaces. (Ord. 16653 § 2 (part), 2007)

20.02.684 Parkway.

"Parkway" means that area of street right-of-way between the property line and the curb or, in the absence of a curb, between the property line and the nearest edge of the street paving. (Ord. 16653 § 2 (part), 2007)

20.02.686 Passenger car.

"Passenger car" means every vehicle, except motorcycles, designed for carrying ten passengers or less and used for the transportation of persons. (Ord. 16653 § 2 (part), 2007)

20.02.688 Passenger station.

"Passenger station" means a type of passenger terminal that receives and discharges passengers by rail. (Ord. 16653 § 2 (part), 2007)

20.02.690 Passenger terminal.

"Passenger terminal" means a facility or location where the principal use is the handling, receiving and transfer of passenger traffic, and may include as an accessory use the loading, unloading, storing, receiving, assembling, dispatching, weighing, consolidating, classifying, switching, distribution, movement or transfer of freight, as well as all equipment and facilities utilized to accomplish the foregoing activities. For purposes of this definition, a facility that handles the transport of passengers, by any vehicle type, for any public, private or parochial school shall not be considered to be a passenger terminal. (Ord. 16653 § 2 (part), 2007)

20.02.691 Passive recreation.

"Passive recreation" means recreational activities requiring minimal development or facilities and providing areas for informal, self-directed activities that place minimal stress on a site's resources and are highly compatible with natural resource protection. Such activities include, but are not limited to, backpacking, hiking, wildlife viewing, observing and photographing nature, picnicking, walking, bird watching, mountain and recreational bicycling, running/jogging, horseback riding and climbing. Passive recreational activities do not require highly structured facilities like sports fields or pavilions, but may include minor facilities ancillary to passive recreational activities including, but not limited to interpretive signage and kiosks for educational purposes, picnic areas, parking areas, restrooms and shade structures with preference given to natural sources of protection such as trees.
(Ord. No. 18531, § 2, 6-28-2016)

20.02.692 Passive solar energy system.

"Passive solar energy system" means any space or structural components that are specifically designed to retain heat derived from solar energy, including ponds for evaporative cooling, and any moving parts that increase heat retention by the system. (Ord. 16653 § 2 (part), 2007)

20.02.694 Pasturage (small or large animals).

"Pasturage (small or large animals)" means land used for grazing. (Ord. 16653 § 2 (part), 2007)

20.02.696 Patio house.

"Patio house" means a single-family dwelling, attached or semidetached, which together with an enclosed private court or patio may occupy up to one hundred percent of a subdivided lot or assigned land area. The courtyard or patio of such a house serves as the principal open space for the occupants and a major source of natural light for the interior of the house. (Ord. 16653 § 2 (part), 2007)

20.02.697 Pawn shop.

"Pawn shop" means an establishment engaged in the business of lending money of the security of pledged goods; or purchasing goods on condition that the goods may be redeemed or repurchased by the seller for a fixed priced within a fixed period.
(Ord. No. 18244, § 1, 9-16-2014)

20.02.698 Performing arts center.

"Performing arts center" means a structure or structures, used for dramatic, operatic, or other performance as the principal use of the space, although incidental use for private meetings, exhibits and presentations shall be permitted. Such establishments may include related services such as food and beverage sales and other concessions. (Ord. 16653 § 2 (part), 2007)

20.02.700 Performance standard.

"Performance standard" means regulations that allow uses based on specific criteria limiting noise, air pollution, emissions, odors, vibration, dust, dirt, glare, heat, fire hazards, wastes, traffic impacts, and visual impact of uses of land or structures. (Ord. 16653 § 2 (part), 2007)

20.02.702 Person.

"Person" means any individual, partnership, corporation or other entity of any kind authorized to transact business in the state. (Ord. 16653 § 2 (part), 2007)

20.02.704 Personal care facility.

"Personal care facility" means a facility where personal care services are furnished for twenty-four hours a day to any person who is unable to provide for his own personal needs without such assistance. (See adult foster care, assisted living facility, convalescent, nursing or rest home.) (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17577, § 1, 7-7-2011)

20.02.706 Personal care services.

"Personal care services" means:

a. Assistance with meals, dressing, movement, bathing, or other personal needs or maintenance;

b. The administration of medication by a person licensed to administer medication or the assistance with or supervision of medication; or

c. General supervision or oversight of the physical and mental well-being of a person who needs assistance to maintain a private and independent residence in an assisted living facility or who needs assistance to manage the person's personal life, regardless of whether a guardian has been appointed for the person. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17577, § 1, 7-7-2011)

20.02.708 Personal goods repair.

"Personal goods repair" means a facility engaged in the repair of watches, jewelry, musical instruments, bicycles or similar items. (Ord. 16653 § 2 (part), 2007)

20.02.710 Personal wireless service facility.

"Personal wireless service facility (PWSF)" is an umbrella term encompassing a broad range of wireless communications technologies that transmit information, primarily cellular telephones (which use analog technology) and the newer personal communication services (PCS, which use digital technology). For both cellular and PCS

facilities, there are three types of hardware to be considered: the antennas themselves, the mounting structures upon which the antennas are placed, and the equipment shelters in which the controls for the antennas are located.

1. "Ground-mounted PWSF" means an antenna that is mounted on a freestanding support structure, such as a monopole or tower.

2. "Roof-mounted PWSF" means an antenna that is mounted on a structure that is located on the roof of a building.

3. "Facility-mounted PWSF" means an antenna that is mounted on a functioning light pole or other structure whose primary purpose is and will continue to be a use other than as an antenna support structure. (Ord. 16653 § 2 (part), 2007)

20.02.712 Petroleum products manufacturing.

"Petroleum products manufacturing" means a facility for the work or processing necessary for the production of petroleum products. (Ord. 16653 § 2 (part), 2007)

20.02.714 Pharmacy.

"Pharmacy" means a place where drugs and medicines are prepared and dispensed. (Ord. 16653 § 2 (part), 2007)

20.02.716 Phasing plan.

"Phasing plan" means a general proposal for development of property containing the proposed sequence of development, open space, the layout of land uses, density expressed in units per acre, a circulation plan, and any similar information determined necessary for the review of the proposed development. (Ord. 16653 § 2 (part), 2007)

20.02.718 Photo finishing lab.

"Photo finishing lab" means a business where the primary function is to develop and print photographic film. (Ord. 16653 § 2 (part), 2007)

20.02.719 Place of public assembly.

"Place of public assembly" shall mean any public or private college, university, school, library, museum, religious institution, community recreational facility, public recreational facility, or other similar public facility.
(Ord. No. 17360, § 3, 7-20-2010)

20.02.720 Plan commission.

"Plan commission" means the city plan commission of El Paso, Texas. (Ord. 16653 § 2 (part), 2007)

20.02.722 Planned development.

"Planned development" means a development on property which is planned and built to achieve a cohesive relationship between uses and facilities; which has been platted in accordance with this Code; and which has received approval from city council. (Ord. 16653 § 2 (part), 2007)

20.02.724 Planned residential development.

"Planned residential development" means a residential development within which are permitted a diversity of dwelling types and uses, observing the design requirements of the zoning district and requiring approval of the city council before the start of development. (Ord. 16653 § 2 (part), 2007)

20.02.724.1 Plastics products finishing.

"Plastics products finishing" includes the production of plastics or rubbers from an intermediate product into a final product, often characterized by a process of additive manufacturing, 3D printing, thermoforming, stamping, polishing, or final assembly.
(Ord. No. 019517, § 1, 6-20-2023)

20.02.724.2 Plastics products manufacturing.

"Plastics products manufacturing" means the processing of bulk synthetic or organic polymers, rubbers and urethanes into an intermediate or final form but excludes the recycling or remanufacturing of such products.
(Ord. No. 019517, § 1, 6-20-2023)

20.02.726 Poultry hatchery.

"Poultry hatchery" means a facility used for hatching, rearing or keeping of poultry for either egg or meat production. (Ord. 16653 § 2 (part), 2007)

20.02.728 Precision equipment repair.

"Precision equipment repair" means establishments primarily engaged in repairing and maintaining electronic and precision equipment, such as medical diagnostic imaging equipment, measuring and surveying instruments, laboratory instruments, and radar and sonar equipment. (Ord. 16653 § 2 (part), 2007)

20.02.730 Primary metal manufacturing.

"Primary metal manufacturing" means a facility that smelts and/or refines ferrous and nonfer-

rous metals from ore, pig iron or scrap, using electrometallurgical and other metallurgical techniques. These facilities also manufacture metal alloys and superalloys by introducing other chemical elements to pure metals. (Ord. 16653 § 2 (part), 2007)

20.02.732 Primary system.

"Primary system" means that portion of connected main highways located within the state which now or hereafter may be designated officially by the state highway and public transportation commission. (Ord. 16653 § 2 (part), 2007)

20.02.734 Principal use.

"Principal use" means a use that is the predominant activity or operation of the facility, building or premises. (Ord. 16653 § 2 (part), 2007)

20.02.736 Produce stand.

"Produce stand" means a facility used primarily for the sale of fruits, vegetables and other farm products, not to include meat and dairy products. (Ord. 16653 § 2 (part), 2007)

20.02.738 Provider.

"Provider" means a person residing or working in a personal care facility, whose duties include, but are not limited to, direct care, supervision and guidance of personal care recipients. (Ord. 16653 § 2 (part), 2007)

20.02.740 Premises.

"Premises" means a lot, together with all buildings and structures thereon. (Ord. 16653 § 2 (part), 2007)

20.02.742 Processing facility, heavy.

"Heavy processing facility" means any processing facility other than a light or a waste processing facility.
(Ord. 16653 § 2 (part), 2007; Ord. No. 19019, § 2, 1-7-2020)

20.02.744 Processing facility, light.

"Light processing facility" means a facility with less than forty-five thousand square feet of gross collection, processing and storage area. Light processing facilities are limited to baling, briquetting, crushing, compacting, grinding, shredding and sorting of source-separate recyclable material and repairing of reusable material. A light processing facility shall not shred, compact or bale ferrous metals other than food and beverage containers. (Ord. 16653 § 2 (part), 2007)

20.02.745 Processing facility, waste.

"Waste processing facility" means a facility where solid waste or wastewater is processed for eventual disposal or reclamation. Waste types can include recyclable materials, putrescible materials, regulated medical waste, and wastewater or septage. Waste processing facilities owned by, or operated for, federal, state, or local government entities are excluded from this definition of waste processing facility.
(Ord. No. 19019, § 1, 1-7-2020)

20.02.746 Property line.

"Property line" means the official boundary of a parcel, lot, or tract of land as designated by either a metes and bounds description or recorded subdivision plat filed in the records and maps of the county clerk. (Ord. 16653 § 2 (part), 2007)

20.02.748 Public building.

"Public building" means a building, or part thereof, owned and occupied and used by an agency or political subdivision of the United States of America, the state of Texas, El Paso County or the City of El Paso, Texas. (Ord. 16653 § 2 (part), 2007)

20.02.750 Public entryway.

"Public entryway" means street frontage or building entries open to the public, but shall not include loading docks, delivery entries, curb cuts or required exits to buildings. (Ord. 16653 § 2 (part), 2007)

20.02.752 Public utility.

"Public utility" means a closely regulated enterprise existing under the provisions of Chapter 402 of the Texas Local Government Code or of Title 32, Chapter 10 of the Texas Revised Civil Statutes, which provides to the public a utility service deemed necessary for the public health, safety, and general welfare. For purposes of this section, a municipality owning or operating a public utility system or an entity with a franchise with the municipality to provide a public utility system shall be considered a public utility. (Ord. 16653 § 2 (part), 2007)

20.02.754 Public utility facility.

"Public utility facility" means the buildings, structures and facilities relating to the furnishing of public utility services to the public. Public utility facilities shall be categorized as follows:

A. Minor Utility Facilities. Minor utility facilities shall include facilities which are necessary to support principal development including, but not limited to, lines, poles, pipes, drains, conduits, wires, meters, valves, hydrants, cross-connection control devices, transformers, gauges and other similar facilities which serve to distribute and transmit electrical power, gas, water and other essential public utilities; bus shelters, terminals and other similar facilities necessary for mass transportation service; bridges, catch basins, channels, culverts, detention ponds, ditches, flumes, pipes and other similar facilities which serve to carry, store, divert or collect storm drainage from land; and which minor utility facilities are customarily placed within a public right-of-way or public easement.

B. Water and Wastewater Utility Facilities. Water and wastewater utility facilities shall include facilities providing service, maintenance or repair of essential public utilities to one or more developments including, but not limited to, wells, pumping stations, boosters, reservoirs, repeaters, water storage tanks, lift stations, regulators and other similar facilities; and which are not a minor or major utility facility.

C. Communication Utility Facilities. Communication utility facilities are not minor or major utility facilities and shall include facilities that provide for the transmission, transfer and distribution of telephone service and related activities. Facilities include, but shall not be limited to, communications exchanges, mini-huts, maxi-huts and other similar facilities.

D. Major Utility Facilities. Major utility facilities shall include facilities which are used primarily for the storage, treatment, distribution or collection of an essential public utility service including, but not limited to, facilities for generation of energy, water and wastewater treatment plants, storage yards, switching facilities, primary substations and similar facilities. (Ord. 16653 § 2 (part), 2007)

20.02.756 Public utility service.

"Public utility service" means a service essential to the health, safety and general welfare of the public, such as the generation, transmission and/or distribution of electricity, gas, steam, communications, and water; the collection and treatment of sewage and solid waste; the collection, storage or diversion of surface waters from land; and the provision of mass transportation. (Ord. 16653 § 2 (part), 2007)

20.02.758 Pumpkin patch.

"Pumpkin patch" means a temporary location from which pumpkins are sold. (Ord. 16653 § 2 (part), 2007)

20.02.760 Quadraplex.

"Quadraplex" means a building designed or occupied as four dwelling units. (Ord. 16653 § 2 (part), 2007)

20.02.762 Quarry.

"Quarry" means an open pit from which building stone, sand, gravel, mineral or fill is taken to be processed for commercial purposes. (Ord. 16653 § 2 (part), 2007)

20.02.764 Racetrack, auto or truck.

See "Stadium." (Ord. 16653 § 2 (part), 2007)

20.02.766 Racetrack, motorcycle.

See "Stadium." (Ord. 16653 § 2 (part), 2007)

20.02.768 Racquetball club, indoor (with/without restaurant and bar).

"Indoor racquetball club (with/without restaurant and bar)" means a commercial or noncommercial establishment that provides facilities for playing racquetball. (Ord. 16653 § 2 (part), 2007)

20.02.770 Racquetball club, outdoor (with/without restaurant and bar).

"Outdoor racquetball club (with/without restaurant and bar)" means a commercial or noncommercial establishment that provides facilities for playing racquetball. (Ord. 16653 § 2 (part), 2007)

20.02.772 Radio transmitting and receiving facility.

"Radio transmitting and receiving facility" means a site containing radio transmitting and receiving apparatus and appurtenant equipment and including unipole or dipole antennas, array antennas or microwave parabolic (dish) antennas which radiate, and may receive, audio, video, digital or encoded radio frequency signals from station-to-station or on a broadcast basis. Such facilities shall include, but shall not be limited to, commercial AM or FM radio station transmitter sites, commercial television station transmitter sites, telephone cellular stations and mobile type radio communication fixed transmitter sites. The antennas may be wall, roof or tower mounted. This definition shall not apply to federally licensed amateur radio stations complying with the Federal Communications Commission (FCC) regulations. (Ord. 16653 § 2 (part), 2007)

20.02.774 Railroad repair shop.

"Railroad repair shop" is a repair facility consisting of tracks and shop buildings for the purpose of repairing, inspecting, testing, painting, maintaining, servicing and storing cars, engines, trucks, locomotives, switch engines, rolling stock and equipment as well as all equipment and facilities utilized to accomplish the foregoing activities. (Ord. 16653 § 2 (part), 2007)

20.02.776 Railroad right-of-way (R.O.W.).

"Railroad right-of-way (R.O.W.)" is a roadway not exceeding two hundred feet in width occupied by a main track or other trackage including, but not limited to, land as may be reasonably needed for the purpose of cuttings and embankments necessary for the proper construction and security of its tracks, and any and all rights and appurtenances authorized by state or federal law. (Ord. 16653 § 2 (part), 2007)

20.02.778 Railroad spur track.

"Railroad spur track" is a track which facilitates service by a carrier to one or more warehousing, manufacturing or industrial enterprises, for the purpose of receiving materials needed for the operation of that enterprise and the loading or unloading of freight onto trailers, containers or railcars. (Ord. 16653 § 2 (part), 2007)

20.02.780 Railyard.

"Railyard" is an area of land, a portion of which is covered by a system of tracks that provide for the making up of trains by one or more railroads or private industry concerns. Necessary functions of a railyard include, but are not limited to, the classifying, switching, storing, assembling, distributing, consolidating, moving, repairing, weighing or transferring of cars, trains, engines, locomotives and rolling stock. (Ord. 16653 § 2 (part), 2007)

20.02.782 Raising (small or large animals).

"Raising (small or large animals)" means the use of land for the raising of animals for agricultural or commercial purposes. (Ord. 16653 § 2 (part), 2007)

20.02.784 Raising crops.

"Raising crops" means the use of land for the raising of crops for agricultural or commercial purposes. (Ord. 16653 § 2 (part), 2007)

20.02.786 Ranchette (greater than one acre and less than five acres).

"Ranchette" means a single dwelling unit occupied by a non-farming household on a parcel greater than one acre but less than five acres that has been subdivided from agricultural land. (Ord. 16653 § 2 (part), 2007)

20.02.788 Raw material processing.

"Raw material processing" means the processing of extracted materials from a site, as related to a quarry operation. (Ord. 16653 § 2 (part), 2007)

20.02.790 Recreation vehicle.

"Recreation vehicle" means a vehicle that is:

1. Built on a single chassis;
2. Four hundred square feet or less when measured at the largest horizontal projections;
3. Self-propelled or permanently towable by motor vehicle or light duty truck;
4. Designed primarily not for use as permanent dwelling but as temporary living quarters for recreational, camping, travel, or seasonal use; and
5. Required by Texas law to have a valid vehicle registration when traveling upon public streets.

"Recreational vehicle" shall not include a manufactured home. (Ord. 16653 § 2 (part), 2007)

20.02.792 Recreation vehicle park.

"Recreation vehicle park" means a unified development on a tract of land under common ownership designed primarily for transient service, on which recreational vehicles of the general public are parked or situated. (Ord. 16653 § 2 (part), 2007)

20.02.794 Recyclable material.

"Recyclable material" means reusable material including, but not limited to, metals, glass, plastic and paper which are intended for reuse, remanufacture or reconstitution for the purpose of using the altered form. Recyclable material does not include refuse or hazardous waste, unless such refuse or hazardous waste is mandated to be recycled under federal, state or local law. Recyclable material may include used motor oil collected and transported in accordance with federal, state and local laws. (Ord. 16653 § 2 (part), 2007)

20.02.796 Recycling facility.

"Recycling facility" means a center for the collection and/or processing of recyclable material. A recycling facility does not include storage containers or processing facilities located on the premises of a residential, commercial or manufacturing use and used solely for the recycling of material generated by that residential property, business or manufacturer. Recycling facilities may include collection facilities and processing facilities. (Ord. 16653 § 2 (part), 2007)

20.02.798 Recycling collection facility, large (greater than two thousand square feet).

"Recycling collection facility, large (greater than two thousand square feet)" means a center with more than two thousand square feet of recycling area for the collection or processing of recyclable materials including glass, paper, plastic, cans, motor oil, chemicals, household appliances, tires, automobiles, automobile parts, or other source-separated nonputrescible materials. (Ord. 16653 § 2 (part), 2007)

20.02.800 Recycling collection facility, small (less than or equal to two thousand square feet).

"Recycling collection facility, small (less than or equal to two thousand square feet)" means a center with two thousand square feet or less of recycling area for the collection or processing of recyclable materials including glass, paper, plastic, cans or other source-separated nonputrescible materials, but excluding motor oil, chemicals, household appliances, tires, automobiles, automobile

parts and putrescible materials. (Ord. 16653 § 2 (part), 2007)

20.02.802 Recycling collection facility, temporary.

"Temporary recycling collection facility" means a temporary facility designed to be a collection point where only recyclable materials are sorted and/or temporarily stored prior to delivery to a permanent disposal site, or shipment to others for reuse, and/or processing into new products. This facility can be mobile. (Ord. 16653 § 2 (part), 2007)

20.02.804 Regulations.

"Regulations" means the whole body of regulations, text, charts, tables, diagrams, maps, notations, references and symbols, contained or referred to in the El Paso City Code. (Ord. 16653 § 2 (part), 2007)

20.02.805 Environmental and wildlife research.

"Environmental and wildlife research" means scholarly or scientific investigation, or study related to environmental, cultural, nature, habitat, or wildlife.
(Ord. No. 17776, § 1, 5-1-2012)

20.02.806 Research laboratory.

"Research laboratory" means a facility where administrative, engineering, scientific research, design, or experimentation, including research on electronic components, optical equipment, etc., is conducted with minimal noxious impacts. (Ord. 16653 § 2 (part), 2007)

20.02.808 Resource recovery plant.

"Resource recovery plant" means a facility for the processing of municipal solid waste or wastewater treatment byproducts into energy or other useful products. (Ord. 16653 § 2 (part), 2007)

20.02.810 Restaurant, drive-in.

"Drive-in restaurant" means a restaurant that may or may not provide seating inside and its principal character is to provide parking spaces for motor vehicles and to provide service to patrons who remain in the motor vehicles. (Ord. 16653 § 2 (part), 2007)

20.02.812 Rest home.

See "Convalescent, nursing or rest home." (Ord. 16653 § 2 (part), 2007)

20.02.814 Retail shipping center.

"Retail shipping center" means a type of freight terminal where the principal activity is shipping, mailing and drop-off services, and may include as an accessory use the retailing of products associated with product shipping and mailing. (Ord. 16653 § 2 (part), 2007)

20.02.816 Reverse vending machine.

"Reverse vending machine" is an automated mechanical device which accepts and mechanically processes at least one or more types of materials including, but not limited to, aluminum cans, glass and plastic bottles and issues a cash refund or a redeemable credit slip or other form of benefit; and the entire process is enclosed within the machine. In order to accept and temporarily store all container types in a proportion commensurate with their relative redemption rates, multiple grouping of reverse vending machines may be necessary. (Ord. 16653 § 2 (part), 2007)

20.02.818 Riding academy.

"Riding academy" means an establishment where horses are boarded and cared for, and where instruction in riding, jumping, and showing is offered, and where horses may be rented for riding. (Ord. 16653 § 2 (part), 2007)

20.02.820 Reserved.

Editor's note—Ord. No. 18241, § 1, adopted September 9, 2014, repealed § 20.02.820, which pertained to rooming house and derived from Ord. 16653 § 2 (part), 2007.

20.02.822 Sales stands (ranch and farm products).

"Sales stands (ranch and farm products)" means the temporary use of land for the sale of agricul-

tural produce or merchandise produced by the owner or the owner's family on their farm. (Ord. 16653 § 2 (part), 2007)

20.02.824 Salvage yard (scrap materials).

"Salvage yard (scrap materials)" means a facility or area for storing, keeping, selling, dismantling, shredding, compressing, or salvaging scrap or discarded material or equipment. Scrap or discarded material includes, but is not limited to, metal, paper, rags, tires, bottles, motor vehicle parts, machinery, structural steel, equipment and appliances. (Ord. 16653 § 2 (part), 2007)

20.02.826 Sand and gravel pit.

"Sand and gravel pit" means a type of open pit mine, or strip mine, from which sand and gravel are removed. (Ord. 16653 § 2 (part), 2007)

20.02.828 Sand or gravel, extraction of.

"Extraction of sand or gravel" means the separation and removal of sand or gravel from a quarry for commercial or other purposes. (Ord. 16653 § 2 (part), 2007)

20.02.830 Sanitarium.

"Sanitarium" means a facility where two or more sick, injured or infirm persons are regularly housed, and are provided therapy, treatment or rehabilitation, with no surgical care provided. (Ord. 16653 § 2 (part), 2007)

20.02.832 Sanitary landfill.

"Sanitary landfill" means a publicly or privately owned area of land used for the disposal of solid waste in accordance with applicable statutes, ordinances, standards, rules or orders pertaining to the disposal of solid waste where the landfill is located. (Ord. 16653 § 2 (part), 2007)

20.02.834 Sauna, exercise room.

"Exercise room sauna" means a building or portion of a building used for providing a steam bath or heated bathing room using steam or hot air. (Ord. 16653 § 2 (part), 2007)

20.02.836 Scenic area.

"Scenic area" means any area of particular scenic beauty or historical significance as determined by the United States of America, the state, or the city, including any interests in land which have been acquired for the restoration, preservation and enhancement of scenic beauty. (Ord. 16653 § 2 (part), 2007)

20.02.838 Scenic corridor.

"Scenic corridor" means an area of land generally adjacent to and visible from a roadway that requires protective measures to ensure perpetuation of its scenic qualities. (Ord. 16653 § 2 (part), 2007)

20.02.840 School—Elementary.

"Elementary school" means any public, private or parochial institution that offers a course of instruction for grades pre-kindergarten through sixth grade. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 18104, § 1, 12-17-2013)

20.02.841 School—Secondary.

"Secondary school" means any public, private or parochial institution that offers a course of instruction for grades seventh through twelfth grade. A single building including a combination of pre-kindergarten through twelfth grade shall be considered a secondary school.
(Ord. No. 18104, § 1, 12-17-2013)

20.02.842 School, arts and crafts.

"School, arts and crafts" means a facility for instruction in arts and crafts. (Ord. 16653 § 2 (part), 2007)

20.02.844 School, trade, business or vocational.

"Trade, business or vocational school" means a facility where training is provided in a particular trade, craft or skill. (Ord. 16653 § 2 (part), 2007)

20.02.846 Screening.

"Screening" means a hedge, earth berm, wall or fence constructed in accordance with the re-

with convenience goods. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 18687, § 1, 5-30-2017)

20.02.868 Shopping center, neighborhood.

"Neighborhood shopping center" means a small to moderate shopping center, generally utilizing a site of three to ten acres, with leading tenants being a supermarket and/or drugstore, and serving a trade area of three miles. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 18687, § 1, 5-30-2017)

20.02.870 Shopping center, regional.

"Regional shopping center" means a large shopping center, generally utilizing a site of forty to one hundred acres with gross leasable area (GLA) of four hundred thousand to eight hundred thousand square feet having as leading tenants two or more large anchor stores and serving a trade area of five to fifteen miles. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 18687, § 1, 5-30-2017)

20.02.871 Superregional shopping center.

"Superregional Shopping Center" means a shopping center consisting of three or more anchors and only a minimum amount of small specialty tenants. Compared to traditional regional shopping centers, superregional shopping centers include more anchor stores, offer a deeper selection of merchandise, and draw from a larger population base. To qualify as a superregional, a shopping center must have a total site acreage that exceeds forty acres in size under the control of a single owner, have a gross leasable area (GLA) that exceeds eight hundred thousand square feet, and have a primary trade area in excess of fifteen miles.
(Ord. No. 17960, § 1, 2-19-2013; Ord. No. 18687, § 1, 5-30-2017)

20.02.872 Shrub.

"Shrub" means a woody plant, deciduous or evergreen, generally multi-stemmed with small branches near the ground, and smaller growing than a tree. (Ord. 16653 § 2 (part), 2007)

20.02.874 Sign.

"Sign" means any outdoor display surface, structure, search light, banner, pennant, inflatable and airborne device, whether mounted on land, air, or water, which is visible from any portion of the public right-of-way to vehicular or pedestrian traffic, a principal purpose of which is to attract attention to a communicative visual or graphic image. The term "sign" includes any moving part, lighting, sound equipment, framework, background material, structural support, or other part

thereof. A display, device, or thing need not contain lettering to be a sign. Notwithstanding the generality of the foregoing, the following are not within this definition:

- Aerial signs or banners towed behind aircraft.
- Automated Teller Machines (ATMs) not used for general advertising for hire.
- Architectural features. Decorative or architectural features of buildings (not including lettering, trademarks or moving parts), which do not perform a communicative function.
- Barber poles displayed outside establishments providing hair cutting and styling services.
- Fireworks.
- Foundation stones and cornerstones which are permanent in nature and incapable of modification once installed.
- Grave markers, grave stones, headstones, mausoleums, shrines, and other markers of the deceased.
- Holiday and cultural observance decorations on private residential property which are on display for not more than 45 calendar days per year (cumulative, per parcel or use).
- Inflatable games and gymnasiums. Inflatable, temporary, moveable, gymnasium devices commonly used for children's birthday parties, and similar devices. Also called "party jumps."
- Manufacturers' marks. Marks on tangible products, which identify the maker, seller, provider or product, and which customarily remain attached to the product even after sale.
- Mass transit graphics. Graphic images mounted on duly licensed and authorized mass transit vehicles that legally pass through the city merchandise on public, display and presently available for purchase on-site.
- News racks and newsstands.
- Personal appearance. Items or devices of personal apparel, decoration or appearance, including tattoos, makeup, wigs, costumes, masks, etc. (but not including commercial mascots or hand-held signs);
- Public art located on city property.
- Search lights and klieg lights when used as part of a search and rescue or other emergency service operation; this exclusion does not apply to search lights or klieg lights used as attention attracting devices for commercial or special events.
- Shopping carts, golf carts, horse drawn carriages, and similar devices; any motorized vehicle which may be legally operated upon a public road is not within this exclusion.
- Symbols of noncommercial organizations or concepts including, but not limited to, religious or political symbols, when such are permanently integrated into the structure of a permanent building which is otherwise legal; by way of example and not limitation, such symbols include stained glass windows on churches, carved or bas relief doors or walls, bells, religious statuary, etc.
- Vehicle and Vessel Insignia On street legal vehicles and properly licensed watercraft or aircraft: License plates, license plate frames, registration insignia, noncommercial messages, messages relating to the establishment of which the vehicle or vessel is an instrument or tool (not including general advertising) and messages relating to the proposed sale, lease or exchange of the vehicle or vessel.
- Vending machines, product dispensing devices and automated product intake devices which do not display offsite commercial messages or general advertising messages; by way of example and not limitation, "automated product intake devices" means ma-

chines which accept recycle materials, or "book return" slots at libraries, or "leave your clothes here" boxes at laundry places.

- Window displays. The display of merchandise in a store window. (Ord. 16653 § 2 (part), 2007)

(Ord. No. 17318, § 1, 5-4-2010)

20.02.876 Sign, inflatable advertising device.

Inflatable advertising device means a device .which is inflated with air or another gas, or which is activated by wind, air, or propelled gas, and used for outdoor advertising purposes. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010)

20.02.878 Sign, add-ons.

Add-ons, in the context of billboards, means a design element that extends outside the structural display face on a billboard. Also called "extensions." (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010)

20.02.880 Sign, adopt-a-median.

Adopt-a-median sign means a freestanding sign located in the median of a street right-of-way identifying the entity or organization that is responsible for maintaining the median where the sign is located. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010)

20.02.882 Sign area.

Sign area means the entire area of a sign on which copy could be placed within a continuous perimeter composed of a geometric configuration which encloses the extreme limits of the advertising, excluding the sign pole(s), base(s) or other support(s). Where a sign has two or more faces, the area of all faces shall be considered in determining the sign area, except that only one face of a double-faced sign shall be considered in determining the sign area when both faces are parallel or the faces are in a V configuration and the interior angle between the faces does not exceed forty-five degrees. Where a sign consists only of individual components (letters, numerals, symbols or other similar components), which are painted on or attached flat against the wall of a building, are without integrated background definition and are not within a circumscribed frame area, the total area of the sign shall be the area of the square, rectangle or other straight line geometric configuration which circumscribes the entire message. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010)

20.02.884 Sign, auxiliary.

Auxiliary sign means a sign with no commercial advertising, except for the name or logo of the business, that pertains to the safe and efficient movement of pedestrians and vehicular traffic into and out of a building or premises and that has a directional purpose secondary to the use of the lot on which it is located, such as "no parking," "entrance," "loading only," "telephone," "emergency entrance," and other similar directives. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010)

20.02.886 Sign, awning.

Awning sign means a wall sign suspended from, mounted on or otherwise supported by an awning (a wall mounted, frame structure with flexible, reinforced fabric covering). (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010)

20.02.888 Sign, banner.

See "sign, temporary banner." (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010)

20.02.890 Sign, billboard.

Billboard means a permanent structure sign which meets any one or more of the fol1owing criteria: a) it is used for the display of off-site commercial messages; b) it is used for general advertising for hire; c) it functions as a principal or separate principal use of the land on which it is located, in contrast to functioning as an accessory

or auxiliary to a principal use which is not a sign. The term "billboard" applies to all physical parts of the sign, including display faces, structure, support poles, attached ladders, attached catwalks, and appurtenant lighting systems, and visual display systems. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010)

20.02.892 Sign, building marker.

Building marker sign means a sign indicating the name of a building, date of construction, or other incidental information about its construction and/or history. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010)

20.02.894 Sign, bulletin.

Bulletin means a billboard with a sign face area greater than three hundred seventy-eight square feet, but not greater than six hundred seventy-two square feet. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010)

20.02.896 Sign, canopy.

Canopy sign means a wall sign suspended from, mounted on or otherwise supported by a canopy, arcade or portal. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010)

20.02.897 Sign, changeable electronic variable message.

Changeable electronic variable message sign, also referred to by the acronym CEVM, means a sign which uses electronic means to display changeable or intermittent images, such as by turning on or off various lighting elements including any illuminated sign on which such illumination is not kept stationary or constant in intensity and color at all times when such sign is in use. The term includes display technology such as LED (light emitting diode) or digital displays which can vary in color or intensity, or any system which is functionally equivalent. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010)

20.02.898 Reserved.

Editor's note—Ord. No. 17318, § 1, adopted May 4, 2010, repealed § 20.02.898, which pertained to city pride sign and derived from Ord. 16653 § 2 (part), 2007.

20.02.900 Sign, construction sign.

Construction sign means a sign displayed on a construction site during the time that actual construction is continuing. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010)

20.02.902 Reserved.

Editor's note—Ord. No. 17318, § 1, adopted May 4, 2010, repealed § 20.02.902, which pertained to sign cut-outs and derived from Ord. 16653 § 2 (part), 2007.

20.02.904 Sign, directory.

Directory sign means a wall or monument sign that provides a listing of names of the tenants and space numbers for a multi-tenant building, lot or park. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010)

20.02.906 Reserved.

Editor's note—Ord. No. 17318, § 1, adopted May 4, 2010, repealed § 20.02.906, which pertained to educational sign and derived from Ord. 16653 § 2 (part), 2007.

20.02.908 Sign, externally illuminated.

Externally illuminated sign means the illumination of a surface of a sign from an external source of light intentionally directed upon the sign. Also known as "indirectly illuminated sign." (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010)

20.02.910 Sign height.

Sign height means the following:

1. For freestanding signs, the vertical measurement between the highest part of the sign, excluding all billboard add-ons, and the ground level upon which the sign is located;

2. For wall and all other signs, the vertical

measurement of the sign area. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010)

20.02.912 Sign, home occupation.

Home occupation sign means a wall sign indicating the name, address or business, in any combination, of a code-compliant home occupation operated by the occupant at that residence. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010)

20.02.914 Sign, indirectly illuminated.

See "Sign, externally illuminated." (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010)

20.02.916 Sign, internally illuminated.

Internally illuminated sign means the illumination of an electric sign with a source of light entirely enclosed within the sign. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010)

20.02.918 Sign, junior.

Junior means a billboard with a sign face area not greater than seventy-two square feet. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010)

20.02.920 Sign, marquee.

Marquee sign means a wall or projecting sign suspended from, mounted on or otherwise supported by a marquee, such as a canopy entrance. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010)

20.02.921 Sign, mobile billboard.

Mobile billboard sign means a vehicle or trailer which is used for the display of general advertising for hire. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010)

20.02.922 Sign, monument.

Monument sign means a freestanding sign with a one hundred percent width base; however, the sign may be supported by an internal pipe structure. Base materials may include unpainted brick, stone, cast or cultured stone, or other natural material such as adobe or rammed earth (or similar veneer). Skirts shall also be constructed of minimum three millimeter aluminum, excluding sheet metal. The sign base width may be reduced below one hundred percent, but not less than thirty-three percent, in instances where the proposed sign includes the same architectural features and aesthetics of the buildings on site. Paint colors alone shall not meet this standard. Also known as "ground sign." (Ord. 16653 § 2 (part), 2007; Ord. No. 18245, § 1, 9-16-2014)
(Ord. No. 17318, § 1, 5-4-2010; Ord. No. 17585, § 1, 6-14-2011)

20.02.924 Sign, multi-tenant.

Multi-tenant sign means a sign displaying three or more or establishments, each with a separate certificate of occupancy, located on the same lot or premises. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010)

20.02.926 Sign, noncommercial message.

Noncommercial message is one that visually displays speech or images not pertaining to commercial matters. Noncommercial messages commonly concern religion, politics, social commentary and other matters of public debate. Contrast: Commercial message. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010)

20.02.928 Sign, nonconforming.

Nonconforming sign means a sign legally erected prior to enactment or amendment of this Code and maintained in compliance with the El Paso City Codes, but which does not conform to the current provisions of the sign code or other applicable city ordinances. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010)

20.02.930 Sign, off-premise.

Off-premises sign means a sign displaying a commercial message that pertains to a business,

person, organization, activity, event, place, service or product not principally located, or primarily manufactured, or sold on the premises on which the sign is located. Also known as "off-site sign. "The on-premise/off-premises distinction applies only to commercial messages. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010)

20.02.932 Reserved.

Editor's note—Ord. No. 17318, § 1, adopted May 4, 2010, repealed § 20.02.932, which pertained to off-premises historic wall sign and derived from Ord. 16653, § 2 (part), 2007).

20.02.934 Reserved.

Editor's note—Ord. No. 17318, § 1, adopted May 4, 2010, repealed § 20.02.932, which pertained to off-premises temporary parkway sign and derived from Ord. 16653, § 2 (part), 2007).

20.02.936 Sign, special event directional.

Special event directional sign means a temporary sign providing direction information to a properly authorized special event that is open to the public. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010)

20.02.938 Reserved.

Editor's note—Ord. No. 18134, § 1, adopted March 4, 2014, repealed § 20.02.938, which pertained to sign, off-premises temporary subdivision directional and derived from Ord. 16653 § 2 (part), adopted 2007; Ord. No. 17318, § 1, adopted May 4, 2010.

20.02.940 Sign, on-premise.

On-premises sign, also called "on-site sign" means a sign advertising an establishment, business, person, activity, good, product or service located on the premises where the sign is installed and maintained. In the context of construction signs, all establishments involved in the construction are considered on-premises during the time of construction. In the cases of a redevelopment project or shopping center or business center, any sign located within the project is considered on-premises as to any establishment located in the same project or center. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010)

20.02.941 Sign, perpendicular.

Perpendicular sign means a wall sign that is attached to and projects from the face of a building at a 90-degree angle.
(Ord. No. 17546, § 1, 5-3-2011)

20.02.942 Sign, pole.

Pole sign means a freestanding sign that is supported from the ground by pole(s) or a three-dimensional support structure that is not attached to a building and does not fit the definition of a monument sign. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010; Ord. No. 17585, § 1, 6-14-2011)

20.02.944 Sign, portable.

See "Sign, temporary portable." (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010)

20.02.946 Sign, poster.

Poster means a billboard with a display face area greater than seventy-two square feet but less than three hundred square feet. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010)

20.02.948 Sign, real estate.

Real estate sign means a temporary sign whose message pertains to a proposed economic transaction (sale, lease, rent, etc.) of real estate. Signs related to transient occupancy, such as rates and vacancies at hotels, motels, inns, and bed and breakfast facilities, are not within this definition. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010)

20.02.950 Sign, roof.

Roof sign means a sign that is mounted on a roof or projects above the highest point of the roof line, parapet, or fascia of a building. A sign mounted on a mansard roof is a wall sign, not a roof sign. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010)

20.02.952 Sign, secondary advertising.

Secondary advertising sign means an on-premises sign placed on private property, which is not the primary sign intended for advertising. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010)

20.02.954 Sign, shingle.

Shingle sign means a wall sign that projects from the face of a building and is suspended from a metal structure, awning, canopy or marquee. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010)

20.02.956 Sign, structure area.

Structure area applies to monument signs and means the entire area of the sign structure, as computed by multiplying the sign height by the sign structure width. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010)

20.02.958 Sign, structure support width.

Structure support width sign applies to free-standing signs, and means the width of the three-dimensional support structure(s) that extends from the top of the sign structure to the ground.

20.02.960 Sign, subdivision identification sign.

Subdivision identification sign means a monument or wall sign located at a main entrance of a subdivision. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010)

20.02.962 Sign, temporary.

Temporary sign means a sign which, by virtue of its construction from lightweight or flimsy materials, and construction or installation by hand or with ordinary hand tools, is not suitable for long term display. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010)

20.02.964 Sign, temporary inflatable.

Temporary inflatable sign means an inflatable advertising device greater than two cubic feet in volume, used for advertising purposes. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010)

20.02.966 Sign, temporary active motion inflatable.

Temporary active motion inflatable means a temporary type of inflatable sign utilizing wind baffles and fabric combined with vortex of air created by a mechanical air system to allow the inflatable to dance and move, and which does not contain any words, numerals, trademarks, pictures, designs, or objects. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010)

20.02.968 Sign, temporary banner.

Temporary banner means a temporary sign composed of lightweight fabric or similar material used to attract visual attention. Flags are not within this definition. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010)

20.02.970 Sign, temporary construction.

Temporary construction sign means a temporary sign located on a construction site, typically used to display messages concerning the owner, occupant, contractor, architect, engineer, financial institution, real estate company or similar entities involved with the construction at that site. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010)

20.02.974 Sign, temporary portable.

Temporary portable sign means a temporary sign intended to be displayed for a limited period of time that is not permanently affixed to a building or structure on a site or is not mounted on a permanent foundation. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010)

20.02.976 Reserved.

Editor's note—Ord. No. 17318, § 1, adopted May 4, 2010, repealed § 20.02.976, which pertained to temporary real estate sign and derived from Ord. 16553, § 2 (part), 2007.

20.02.978 Sign, temporary real estate banner.

"Sign, temporary real estate banner" means an on-premise sign composed of lightweight fabric or similar material that is secured and maintained in a safe condition at all times without rips or tears, and that is placed upon a premises advertising that property for sale, rent or lease. The sign may display the identification of a real estate agency, broker or owner of the property.
(Ord. No. 17686, § 1, 12-6-2011)

20.02.980 Sign, temporary seasonal display.

"Temporary seasonal display sign" means a temporary display constructed of banner or sign materials that are mounted on light standards, containing no advertising message and displaying a design, graphic or other pictorial appropriate to the season. (Ord. 16653 § 2 (part), 2007)

20.02.982 Sign, temporary special event.

Temporary special event sign means a temporary sign advertising a properly authorized special event and located at the site of the event. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010)

20.02.984 Sign, temporary subdivision kiosk signs.

"Temporary subdivision kiosk signs" means a sign that shall include any or all of the following: the name of the subdivision(s), the name of the developer or subdivider of record, the name of the homebuilder(s) and a descriptive statement describing the development (e.g. single-family homes, condominiums, etc.) and directional information including arrows or other similar symbols for the purpose of direction only. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010; Ord. No. 18134, § 1, 3-4-2014)

20.02.986 Sign, wall.

Wall sign means a sign permanently affixed to any wall or vertical portion of a building not extending beyond the elevation of the building. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17318, § 1, 5-4-2010)

20.02.987 Sign, wayfinding.

"Wayfinding sign" means a sign, map, or marker designed, constructed, installed and managed by the city located on city property or right-of-way placed by the city that guides the traveling public to key civic, cultural, visitor, and recreational destinations; educational, scholastic or artistic events; community or public interest activities or destinations; designated or recognized civic routes or trails; areas of historical or archaeological significance; or trade shows, events and festivals. Any sponsorship information contained on a wayfinding sign shall be limited to twenty percent of the sign and shall only contain the name of the sponsor.
(Ord. No. 17854, § 1, 8-2-2012)

20.02.988 Single-family attached dwelling (atrium, patio, townhouse, condominium).

See "Atrium house, patio house, townhouse, condominium." (Ord. 16653 § 2 (part), 2007)

20.02.990 Single-family detached dwelling.

"Single-family detached dwelling" means a dwelling unit for one family that is not attached to any other dwelling unit. (Ord. 16653 § 2 (part), 2007)

20.02.992 Site development plan, detailed (DSD).

"Detailed site development plan (DSD)" means a site plan showing the boundaries of the tract proposed for development; location and arrangement, size, use and architectural design of all structures; utility rights-of-way and easements; stormwater drainage; vehicular and pedestrian way; on-site parking areas; open spaces; landscape planted areas; size and design of exterior signs. (Ord. 16653 § 2 (part), 2007)

20.02.994 Site plan, generalized.

"Generalized site plan" means a site plan showing general features or concept of a development. (Ord. 16653 § 2 (part), 2007)

20.02.996 Skateboarding facility (indoor).

"Skateboarding facility (indoor)" means an enclosed facility used for skateboarding purposes. (Ord. 16653 § 2 (part), 2007)

20.02.998 Skateboarding facility (outdoor).

"Skateboarding facility (outdoor)" means an outdoor facility designed for skateboarding purposes. (Ord. 16653 § 2 (part), 2007)

20.02.1000 Slope.

"Slope" means the degree of rise or descent of a parcel of land in relation to a horizontal plane. (Ord. 16653 § 2 (part), 2007)

20.02.1002 Slope, percent average.

"Percent average slope" means the percent average slope calculated for property within the planned mountain development district, and within the boundaries of a subdivision plat, which is determined using the following equation:

S = .0023 IL/A

S = percent average slope

I = contour interval in feet

L = contour length in feet

A = parcel area in acres (Ord. 16653 § 2 (part), 2007)

20.02.1004 Social, fraternal club.

See "Lodge." (Ord. 16653 § 2 (part), 2007)

20.02.1006 Solar conversion system.

"Solar conversion system" means a complete design or assembly consisting of a solar energy collector, an energy storage facility (where used), and components for the distribution of transformed energy. (Ord. 16653 § 2 (part), 2007)

20.02.1008 Solar energy.

"Solar energy" means radiant energy, either direct, diffused, or reflected, received from the sun at wavelengths suitable for conversion into thermal, chemical, or electrical energy. (Ord. 16653 § 2 (part), 2007)

20.02.1010 Solar energy collector.

"Solar energy collector" means a device, structure, or part of a device or structure that is used primarily to transform solar energy into thermal, chemical, or electrical energy. It includes any space or structural component specifically designed to retain heat derived from solar energy, any mechanism that converts wind energy into electrical energy, and any photosynthetic process specially maintained to produce photosynthetic products. (Ord. 16653 § 2 (part), 2007)

20.02.1012 Solar energy conversion system.

"Solar energy conversion system" means a complete design or assembly consisting of a solar energy collector, an energy storage facility when used, and components for the distribution of transformed energy to the extent that they cannot be used jointly with a conventional energy system. Passive solar energy systems are included in this definition, but not to the extent that they fulfill other functions such as structural or recreational. (Ord. 16653 § 2 (part), 2007)

20.02.1014 Specialty shop.

"Specialty shop" means retail operations that specialize in one type or line of merchandise. Such stores may include, but are not limited to, apparel stores, jewelry stores, bookstores, shoe stores, stationery stores, antique stores and similar establishments. (Ord. 16653 § 2 (part), 2007)

20.02.1016 Special exception.

"Special exception" means a use listed as such in the ordinance codified herein and which may be permitted in a specified district, under certain conditions, to be determined in each case by the terms of the ordinance codified herein and by the zoning

board of adjustment after public hearing in accordance with the procedures specified by Title 2 of this Code and applicable state law. (Ord. 16653 § 2 (part), 2007)

20.02.1018 Special permit use.

"Special permit use" means a use, listed in Chapter 20.08 (Permissible Uses) of this title, which may be permitted in a specified district under certain conditions, to be determined in each case by the terms of the ordinance codified herein and by the City Council of the City of El Paso after public hearing and report by the city plan commission in accordance with the procedures specified in Chapter 20.04 (Administrative Provisions) of this title. (Ord. 16653 § 2 (part), 2007)

20.02.1020 Specified anatomical areas.

"Specified anatomical areas" means less than completely and opaquely covered human genitals, pubic region, buttock and female breast below a point immediately above the areola. (Ord. 16653 § 2 (part), 2007)

20.02.1022 Specified sexual activities.

"Specified sexual activities" means:

1. Human genitals in a state of actual or simulated sexual stimulation or arousal;

2. Acts of human masturbation, sexual intercourse or sodomy;

3. Fondling or other erotic touching of human genitals, pubic region, buttock or female breast;

4. "Sexual intercourse," "sexual contact" or "deviate sexual intercourse" as defined in Section 21.01, Texas Penal Code. (Ord. 16653 § 2 (part), 2007)

20.02.1024 Sports arena (multipurpose).

"Sports arena (multipurpose)" means a facility, which is completely enclosed within a building or structure, for indoor exhibitions, conventions or spectator events. (Ord. 16653 § 2 (part), 2007)

20.02.1026 Stable (including breeding).

"Stable (including breeding)" means a structure and/or land use where horses are kept for sale or hire to the public. (Ord. 16653 § 2 (part), 2007)

20.02.1028 Stacking.

"Stacking" means the placing of one sign above another at the same location. (Ord. 16653 § 2 (part), 2007)

20.02.1030 Stadium.

"Stadium" means a facility for outdoor exhibitions and spectator events. (Ord. 16653 § 2 (part), 2007)

20.02.1031 Stormwater open space.

"Stormwater open space" means a natural open area to be used to help manage storm water, reduce flooding risk and improve water quality as its primary purposes, while still permitting passive recreational use of the open space as secondary purposes to the area. Water, waste water, and stormwater utility systems within areas designated for stormwater open space shall be designed with environmentally sensitive infrastructure and constructed with a low impact development (LID) approach to the extent permitted in the city's subdivision regulations. Any area designated as stormwater open space shall require the approval of the floodplain administrator, shall conform to the master stormwater management plan and open space master plan of the city, and shall be shown within the boundaries of any required land study, subdivision plat, detailed site development plan, master zoning plan, SmartCode regulating plan, or any other platting or zoning document as may be required by the city.
(Ord. No. 17904, § 1, 11-6-2012)

20.02.1032 Stormwater retention pond (public/private).

"Stormwater retention pond (public/private)" means a pond, pool, or basin used for the permanent storage of water runoff. (Ord. 16653 § 2 (part), 2007)

20.02.1034 Story.

"Story" means that portion of a building included between the surface of a floor and the surface of the floor above it, or if there is no floor above it, then the space between such floor and the ceiling above it. (Ord. 16653 § 2 (part), 2007)

20.02.1036 Story, half.

"Half story" means a partial story under a gable, hip or gambrel roof, the wall plates of which on at least two opposite exterior sides are not more than two feet above the floor of such story. (Ord. 16653 § 2 (part), 2007)

20.02.1038 Street centerline.

"Street centerline" means the midline of the width of the street. (Ord. 16653 § 2 (part), 2007)

20.02.1040 Street line.

"Street line" means the line between a lot, tract or parcel of land and a contiguous street. (Ord. 16653 § 2 (part), 2007)

20.02.1042 Street, private.

"Private street" means a privately owned accessway within an approved planned development for which the private owners assume full responsibility for maintenance and control and which has not been dedicated to the use of the public. (Ord. 16653 § 2 (part), 2007)

20.02.1044 Street, public.

"Public street" means an accessway dedicated to the use of the public which has been accepted for maintenance and control by the city, county or state. (Ord. 16653 § 2 (part), 2007)

20.02.1046 Structural alteration.

"Structural alteration" means any change or modification in construction. (Ord. 16653 § 2 (part), 2007)

20.02.1048 Structure.

"Structure" means that which is built or constructed, an edifice or building of any kind, or other artificially built or constructed work. (Ord. 16653 § 2 (part), 2007)

20.02.1050 Studio, dance.

"Dance studio" means a facility for instruction in dance. (Ord. 16653 § 2 (part), 2007)

20.02.1052 Studio, music.

"Music studio" means a facility for instruction in music. (Ord. 16653 § 2 (part), 2007)

20.02.1054 Studio, photography.

"Photography studio" means a business where photographs are taken and developed for retail sale to the public. (Ord. 16653 § 2 (part), 2007)

20.02.1056 Subdivision ordinance.

"Subdivision ordinance" means the subdivision ordinance of the City of El Paso, Texas. (Ord. 16653 § 2 (part), 2007)

20.02.1058 Substantial conformity.

A plan shall be determined to be in "substantial conformity" with an approved plan if it does not significantly alter the arrangement of land use, and does not increase the density or relocate major circulation elements or decrease the landscaped area or open space or materially alter the plan or concept for the planned development. (Ord. 16653 § 2 (part), 2007)

20.02.1060 Supermarket.

"Supermarket" means a store offering for sale foodstuffs and some household supplies whose gross floor area is greater than twelve thousand but less than or equal to forty thousand square feet. (Ord. 16653 § 2 (part), 2007)

20.02.1062 Superstore.

"Superstore" means a store offering for sale foodstuffs and some household supplies whose gross floor area is greater than forty thousand but less than or equal to two hundred fifty thousand square feet. A superstore may also include a bank, deli, fast food outlet, eye care facility, minor auto-

motive repair facility and/or other appropriate retail uses all located within the same building structure. (Ord. 16653 § 2 (part), 2007)

20.02.1064 Swimming pool (commercial).

"Swimming pool (commercial)" means any portable or permanent structure containing a body of water twenty-four inches or more in depth and containing one hundred fifty cubic feet (one thousand one hundred twenty-two gallons) or more of water and intended for recreational purposes and open to the public upon payment of a fee. (Ord. 16653 § 2 (part), 2007)

20.02.1066 Swimming pool (noncommercial).

"Swimming pool (noncommercial)" means any portable or permanent structure containing a body of water twenty-four inches or more in depth and containing one hundred fifty cubic feet (one thousand one hundred twenty-two gallons) or more of water and intended for recreational purposes and for the exclusive use of the residents of a residential use and their private guests. (Ord. 16653 § 2 (part), 2007)

20.02.1068 Synagogue.

See "Church." (Ord. 16653 § 2 (part), 2007)

20.02.1070 Tattoo parlor.

"Tattoo parlor" means a business where the primary activity is tattooing and/or body piercing but does not include establishments performing only ear piercing. (Ord. 16653 § 2 (part), 2007)

20.02.1072 Telemarketing agency.

"Telemarketing agency" means a facility where telephone sales, order collection, mail order or catalog sales, or mailing list preparation is conducted. (Ord. 16653 § 2 (part), 2007)

20.02.1074 Temple.

See "Church." (Ord. 16653 § 2 (part), 2007)

20.02.1076 Temporary events on public rights-of-way.

"Temporary events on public-rights-of-way" means any bazaar, block party, sidewalk sale, show, exhibition, local special event, festival, celebration or any similar occurrence to last twenty-four hours or less that will be conducted on a street within an area not exceeding one city block or one intersection. At least two-thirds of the area shall be residentially zoned and said event shall be sponsored solely by the owners, residents or tenants in the area, or their organization. (Ord. 16653 § 2 (part), 2007)

20.02.1078 Temporary use.

"Temporary use" means a use permitted for a fixed time period with the intent to discontinue such use upon the expiration of the time period. Such uses do not involve the construction or alteration of any permanent structure. (Ord. 16653 § 2 (part), 2007)

20.02.1080 Tennis club.

"Tennis club" means a commercial or noncommercial establishment that provides facilities for playing tennis on a membership basis only. "Membership basis" means that the establishment sells memberships making its facilities available to members and their guests for periods of not less than one month at a time, and that such facilities are not open to use by the general public. (Ord. 16653 § 2 (part), 2007)

20.02.1082 Tennis club, indoor (with/without restaurant and bar).

"Indoor tennis club (with/without restaurant and bar)" means a commercial or noncommercial establishment that provides facilities for playing tennis indoors. (Ord. 16653 § 2 (part), 2007)

20.02.1084 Tennis club, outdoor (with/without restaurant and bar).

"Outdoor tennis club (with/without restaurant and bar)" means a commercial or noncommercial establishment that provides facilities for playing tennis outdoors. (Ord. 16653 § 2 (part), 2007)

20.02.1086 Tents (special events).

"Tents (special events)" means any temporary structure composed wholly or partly of canvas or similar materials to be used as a place of amusement or for any religious, educational, charitable or recreational purpose, or any other public assemblages. (Ord. 16653 § 2 (part), 2007)

20.02.1088 Testing laboratory.

"Testing laboratory" means a facility where administrative, engineering, scientific research, design, or experimentation is conducted. (Ord. 16653 § 2 (part), 2007)

20.02.1090 Theater, performing.

"Performing theater" means a structure used for dramatic, operatic, or other live performance. (Ord. 16653 § 2 (part), 2007)

20.02.1091 Theater, movie theater drive-in (outdoor).

"Movie theater drive-in (outdoor)" means a place of public entertainment for the purpose of exhibition of motion picture or live performance of cultural programming. "Drive-in theater, motion picture" means a theater that may or may not provide seating inside and its principal character is to provide parking spaces for motor vehicles. (Ord. No. 019734, § 1, 5-28-2025)

20.02.1092 Townhouse.

"Townhouse" means a single-family dwelling designed to be sold as a unit, but forming one of a group or series of three or more attached single-family dwellings separated from one another by common property lines. (Ord. 16653 § 2 (part), 2007)

20.02.1094 Tractor.

"Tractor" means a motor vehicle designed and used primarily for drawing other vehicles, equipment or implements of husbandry, and not so constructed as to carry any load thereon other than part of the weight of the load being drawn. (Ord. 16653 § 2 (part), 2007)

20.02.1096 Traffic division.

"Traffic division" means the traffic division of the City of El Paso Engineering Department. (Ord. 16653 § 2 (part), 2007)

20.02.1098 Traffic engineer.

"Traffic engineer" means the city engineer, or his designee. (Ord. 16653 § 2 (part), 2007)

20.02.1100 Trailer, eighteen-wheeler (sales, display and repair).

See "Heavy truck (sales storage, repair and rental)." (Ord. 16653 § 2 (part), 2007)

20.02.1102 Tramway.

"Tramway" means a carrier that travels on an overhead cable. (Ord. 16653 § 2 (part), 2007)

20.02.1104 Transfer station.

"Transfer station" means a fixed facility used for transferring solid waste from collection vehicles to long-haul vehicles. It is not a storage facility where individual residents can dispose of their waste. (Ord. 16653 § 2 (part), 2007)

20.02.1105 Reserved.

Editor's note—Ord. No. 18241, § 1, adopted September 9, 2014, repealed § 20.02.1105, which pertained to transitional housing and derived from Ord. No. 17567, § 1, 5-24-2011; Ord. No. 18020, § 1, 6-4-2013.

20.02.1106 Transportation equipment manufacturing.

"Transportation equipment manufacturing" means facilities engaged in producing equipment for transporting people and goods such as, but not limited to, automobiles, light trucks, heavy duty trucks, truck trailers, buses, motor homes, travel trailers, boats, railroad rolling stock and aircraft. (Ord. 16653 § 2 (part), 2007)

20.02.1108 Transportation terminal, Type A.

"Type A transportation terminal" means a type of passenger terminal where passengers are loaded and unloaded from or onto a motor-carrier. A Type A transportation terminal is a facility having

a total land area of no more than four thousand square feet and any building proposed within the land area is no larger than two thousand square feet in gross floor area. (Ord. 16653 § 2 (part), 2007)

20.02.1110 Transportation terminal, Type B.

"Transportation terminal, Type B" means a type of passenger terminal at which passengers are loaded and unloaded from or onto a motor-carrier. A Type B transportation terminal is a facility having a total land area greater than four thousand square feet or where a building proposed within the land area exceeds a gross floor area of two thousand square feet. (Ord. 16653 § 2 (part), 2007)

20.02.1112 Travel trailer.

"Travel trailer" means a portable vehicular structure built on a chassis, designed as a temporary dwelling for travel, recreational and vacation use. (Ord. 16653 § 2 (part), 2007)

20.02.1114 Travel trailer park.

See "Recreation vehicle park." (Ord. 16653 § 2 (part), 2007)

20.02.1116 Tree, parking lot.

"Parking lot tree" means a deciduous or evergreen tree, which is capable of obtaining a minimum canopy, spread of twenty feet at maturity. Branching structure shall be maintained at a minimum height of seven feet above the sidewalk area ground, three feet from the trunk; which is installed and located in a parking lot. (Ord. 16653 § 2 (part), 2007)

20.02.1118 Tree, project.

"Project tree" means a deciduous or evergreen tree having a minimum of two inches cal. ten feet in height, which is capable of obtaining a minimum canopy spread of twenty feet at maturity that is required based on calculations determined by the provisions of this chapter. Branching structure shall be maintained at a minimum height of seven feet above the sidewalk area ground, three feet from the trunk. Such trees shall be healthy and vigorous at time of planting. (Ord. 16653 § 2 (part), 2007)

20.02.1120 Triplex.

"Triplex (three-family dwelling)" means a building designed or occupied as three dwelling units. (Ord. 16653 § 2 (part), 2007)

20.02.1122 Truck stop.

"Truck stop" means a facility that provides services to the trucking industry, including, but not limited to, dispensing of fuel, repair shops, automated washes, restaurants or motels. (Ord. 16653 § 2 (part), 2007)

20.02.1124 Unit.

See "Dwelling unit." (Ord. 16653 § 2 (part), 2007)

20.02.1126 University, college.

"College university" means an institution of higher learning accredited by the state of Texas and offering a course of studies leading to a degree. (Ord. 16653 § 2 (part), 2007)

20.02.1128 Unnecessary hardship.

"Unnecessary hardship" means a hardship by reason of exceptional shape of a lot, exceptional topographic conditions, or other exceptional physical conditions of a parcel of land. Unnecessary hardship shall not include personal or financial hardship or any other hardship that is self-imposed. (Ord. 16653 § 2 (part), 2007)

20.02.1129 Utility green space.

"Utility green space" means an area of protected or conserved land, larger than ten acres, where development is limited or controlled to preserve large areas of undisturbed open space as its primary purpose, while still permitting passive recreational uses and necessary water, wastewater and stormwater utility systems as secondary purposes to the area. Utility green space shall be shown within the boundaries of any required land study, subdivision plat, detailed site development plan, master zoning plan, SmartCode regulating plan, or any other platting or zoning document as may be required by the city.
(Ord. No. 17904, § 1, 11-6-2012; Ord. No. 17967, § 1, 3-5-2013)

20.02.1130 Utility storage yard.

"Utility storage yard" means any storage yard for public utility equipment, materials or vehicles. (Ord. 16653 § 2 (part), 2007)

20.02.1132 Vehicle.

"Vehicle" means every device in, upon or by which any person or property is, or may be, transported upon a roadway, except devices moved exclusively by human power or used exclusively upon stationary rails or tracks. (Ord. 16653 § 2 (part), 2007)

20.02.1134 Vending machines (inside a building).

"Vending machines (inside a building)" means any unattended self-service device that, upon insertion of a coin, coins, or token, or by similar means, dispenses anything of value, including but

not limited to food, beverage, tobacco and sundries. (Ord. 16653 § 2 (part), 2007)

20.02.1136 Vendor, flea market.

"Flea market vendor" means any person who rents, leases or occupies any room, stall, stand or space in any building, structure, enclosure or any other property used as a flea market from which merchandise or food is exhibited and offered for sale. (Ord. 16653 § 2 (part), 2007)

20.02.1138 Veterinary treatment center (large animals).

"Veterinary treatment center (large animals)" means a facility where farm animals, to include, but not limited to, horses, cattle, sheep, goats and pigs, are given medical or surgical treatment and are cared for during the time of such treatment. (Ord. 16653 § 2 (part), 2007)

20.02.1140 Veterinary treatment center (small animals).

"Veterinary treatment center (small animals)" means a facility where small animals such as domesticated dogs and cats and common household pets are given medical or surgical treatment and are cared for during the time of such treatment. (Ord. 16653 § 2 (part), 2007)

20.02.1142 Wall, screening.

"Screening wall" means any structure or device forming a physical barrier which is constructed so that the vertical surface is solid, thus preventing the passage of light, air and vision. The material of which a wall is constructed may be masonry, brick, concrete, metal, wood or other similar materials. Measurement of height shall be from the high ground. (Ord. 16653 § 2 (part), 2007)

20.02.1144 Warehouse club.

"Warehouse club" means a store with fifty thousand square feet or more of gross floor area that offers foodstuffs and household supplies for sale. (Ord. 16653 § 2 (part), 2007)

20.02.1146 Warehouses, self-storage.

See "Self storage warehouse." (Ord. 16653 § 2 (part), 2007)

20.02.1148 Watchman.

"Watchman" means one who is employed to protect a facility or property. (Ord. 16653 § 2 (part), 2007)

20.02.1150 Water and wastewater utility facility.

See "Public utility facility." (Ord. 16653 § 2 (part), 2007)

20.02.1151 Wildlife sanctuary.

"Wildlife sanctuary" means as an area of land, water, and the air space above which is managed to protect wildlife species, their habitat, and the ecosystem(s) these wildlife species depend upon. For the purpose of this ordinance, the term "wildlife sanctuary" is synonymous with "wildlife refuge", "wildlife preserve", and "nature preserve". This designation shall only apply to property that is zoned natural open space.
(Ord. No. 17306, § 1, 4-6-2010)

20.02.1152 Window, bay.

"Bay window" means a window or set of windows extending out from a wall of a building and forming an alcove within; the overall width of such alcove not to exceed one-half of the width of the wall from which it protrudes. The bay window may rise from the ground level or from some point above ground level. (Ord. 16653 § 2 (part), 2007)

20.02.1154 Wind-driven electrical generator.

"Wind-driven electrical generator" means a machine by which mechanical energy supplied by the wind is converted to electric energy. (Ord. 16653 § 2 (part), 2007)

20.02.1156 Wind-driven electrical pump.

See "Wind-driven pump." (Ord. 16653 § 2 (part), 2007)

20.02.1158 Wind-driven pump.

"Wind-driven pump" means a wind operated device that raises or transfers water from one place to another. (Ord. 16653 § 2 (part), 2007)

20.02.1160 Yard.

"Yard" means that part of a lot at grade between a building and the adjoining lot lines, unoccupied and unobstructed by any portion of a structure from the ground upward to the sky, except for permitted projections from the ground such as landscaping, fencing or walls. (Ord. 16761 § 1 (part), 2007: Ord. 16653 § 2 (part), 2007)

20.02.1162 Yard, required front.

"Required front yard" means that part of a lot between the front lot line and the required front setback line, and extended to both side lot lines. (Ord. 16653 § 2 (part), 2007)

20.02.1164 Yard, required rear.

"Required rear yard" means that part of a lot between the rear lot line and the required rear yard setback line, and extended to both side lot lines. (Ord. 16653 § 2 (part), 2007)

20.02.1166 Yard, required side.

"Required side yard" means that part of a lot that is between the side property line and the required side yard setback line and is not a rear yard. (Ord. 16653 § 2 (part), 2007)

20.02.1168 Yard, side street.

"Side street yard" means a side yard whose property line abuts a street. (Ord. 16653 § 2 (part), 2007)

20.02.1170 Youth organization (with/without living facility).

"Youth organization (with/without living facility) means an organization for five or more children under eighteen years of age, operated by a person, partnership, corporation, association, state or city for recreational or educational purposes, that may also conduct resident camps and/or day camps. (Ord. 16653 § 2 (part), 2007)

20.02.1172 Zero lot line.

"Zero lot line" means a property line on which a structure is constructed upon, resulting in no yard on that side. (Ord. 16653 § 2 (part), 2007)

20.02.1174 Zoning administrator.

"Zoning administrator" means the city employee who plans, directs and coordinates the application of the zoning ordinance and related duties as required under the direction of the planning official. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17442, § 3, 10-26-2010)

Chapter 20.04

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Article I. Administrative Bodies and Related Agencies Authority

20.04.010 Responsibility for administration of provisions.

Responsibility for the administration of the provisions of this title shall be vested in the city council, the city plan commission, the planning and inspections department, the zoning board of adjustments, the fire department, the environmental services department, the streets and maintenance department, and the department of public health, in accordance with the provisions of this Code, including the provisions of this title. (Ord. 16817 § 1, 2008: Ord. 16653 § 2 (part), 2007)
(Ord. No. 17442, § 4, 10-26-2010; Ord. No. 17801, § 1, 6-5-2012, eff. 6-11-2012; Ord. No. 19244, § 1, 10-12-2021)

20.04.020 Principals.

Sections 20.04.030 through 20.04.100 identify the principal authorities relative to this title of the bodies and agencies identified in this chapter. (Ord. 16653 § 2 (part), 2007)

20.04.030 City council.

Pursuant to this Code, the city council, in addition to the powers and duties identified in this section, shall have final authority, following recommendation by the city plan commission, to approve or disapprove the comprehensive plan, planning area plans, neighborhood plans and designation of historic landmarks. The city council shall also have authority to approve or disapprove changes, amendments development permits and special permits under this title, and to decide upon appeals from actions of the historic landmark commission. (Ord. 16653 § 2 (part), 2007)

20.04.040 City plan commission.

Pursuant to this Code, the city plan commission, in addition to the powers and duties identified herein, shall have authority to make recommendations to the city council on the comprehensive plan, planning area plans, neighborhood plans, historic landmark designations and on changes and amendments, development permits and special permits under this title. (Ord. 16653 § 2 (part), 2007)

20.04.050 Zoning board of adjustment.

In accordance with Chapter 2.16, the zoning board of adjustment has authority to hear and

finally decide appeals and applications for variances and special exceptions. Appeals from the zoning board of adjustment lie directly to the district court. (Ord. 16653 § 2 (part), 2007)

20.04.060 Planning division.

A. Pursuant to this Code, the planning division, as provided for by ordinance of the city, serves as an administrative and staff agency responsible to the mayor and city council, to the city plan commission and to the zoning board of adjustment. The planning division and the planning official have authority for processing proposals to change the text and map of this title and for processing master zoning plan applications, site plan approval applications, applications for special permits and zoning board of adjustment applications.

B. All applications for zoning change or amendment, approval of a master zoning plan or detailed site plan, or for special permit shall be first filed with the executive secretary of the city plan commission, who shall have responsibility for coordination of the staff review process to include, if applicable, submission to the open space advisory board. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17358, § 1, 7-20-2010; Ord. No. 17442, § 5, 10-26-2010)

20.04.070 Building official.

A. Pursuant to this Code, the building official and other designees of the city manager serve as the administrative staff responsible for the provision of services and the performance of duties as set forth under this title.

B. The building official and any other permit official designated by the city manager have authority under this title for all aspects of development applications or permit applications, except traffic and transportation engineering aspects.

C. All applications for building permits, placement permits, temporary permits, licenses, certificates of occupancy and compliance and certificates of appropriateness shall be filed with the building official or with such other permit official as designated by the city manager.

D. Applications for building permits, placement permits, temporary permits, licenses and certificates of occupancy and compliance shall require approval of the building official or other permit official as designated by the city manager prior to issuance.

E. Applications for certificates of appropriateness shall require approval of the historic landmark commission prior to issuance. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17442, § 6, 10-26-2010)

20.04.080 Department of transportation.

Pursuant to this Code, the department of transportation has authority, under the city council, for all traffic and transportation aspects of development applications or permit applications. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17442, § 7, 10-26-2010)

20.04.090 Fire department.

Pursuant to this Code, the fire department has authority, under the city council, for all aspects of fire protection. (Ord. 16653 § 2 (part), 2007)

20.04.100 Department of public health.

Pursuant to this Code, the department of public health has authority, under the city council, for all animal regulations and public health aspects of this title. (Ord. 16817 § 2, 2008: Ord. 16653 § 2 (part), 2007)

Article II. Planning Documents

20.04.120 General authority.

Pursuant to this Code, and as herein stated, the city plan commission shall have the authority to formulate and recommend, and the city council shall have the authority to approve a comprehensive plan, including a plan for land use, thoroughfares and other appropriate elements of a plan and providing furthermore that the city plan commis-

sion shall have the authority to recommend and the city council shall have authority to approve, detailed plans for planning areas as a guide for public and private land development in the city. (Ord. 16653 § 2 (part), 2007)

20.04.130 Effect of comprehensive plan.

The regulations in this title shall be in accordance with the comprehensive plan for the city and plans for planning areas and shall be implemented in accordance with the comprehensive plan for the city and the plans for planning areas. (Ord. 16653 § 2 (part), 2007)

Article III. Detailed Site Development Plan Approval Process

20.04.140 When required.

Except as stated herein, a detailed site development plan is required prior to development in a special purpose district or with a special permit application and may be required if a zoning condition exists on a particular piece of property. Detailed site development plans are not required for any projects for development in the Mixed Use District (RMU, GMU and IMU) or for any other projects other than those located in special purpose districts or as otherwise required herein. (Ord. 16915 § 1, 2008: Ord. 16653 § 2 (part), 2007)

20.04.150 Procedure.

A. An application for detailed site development plan shall be prepared in accordance with the specifications outlined in Section 20.04.160

B. The application shall be reviewed by the planning division for completeness and shall not be processed until any missing information is supplied by the applicant and the fee has been received.

C. Administrative approval. Detailed site development plans meeting the following conditions shall be reviewed and approved by the zoning administrator:

1. The site is two acres or less in size, and

2. The site plan contains no more than two buildings, and

3. The site plan complies with any zoning conditions and all city code provisions, to include the tables for uses and density and dimensional standards and;

4. The city's department of transportation has no concerns with access or restriction of access to the site; and,

5. The site plan complies with staff recommendations concerning the location of stormwater drainage structures and easements to include on-site ponding areas; the location and arrangement of structures, vehicular and pedestrian ways; open spaces and landscape planted areas. Staff recommendations shall not require that the site plan have landscaping in excess of what is required under the city code or any zoning condition, or

6. Any site within the "U-P" Union Plaza District.

If the zoning administrator does not approve an applicant's detailed sited development plan, the applicant may appeal the decision to the city plan commission. The applicant must file the appeal with the zoning administrator within fifteen business days from the date of the zoning administrator's decision. The zoning administrator shall place the appeal on the city plan commission agenda to be heard by the commission within thirty business days from the date the appeal was received. The zoning administrator shall include the detailed site plan, the appeal, and a summary of the zoning administrator's reasons for disapproving the detailed site plan.

D. City plan commission approval. Pursuant to this Code, the city plan commission, in addition to the powers and duties identified in this chapter, shall have final authority on approval of all other detailed site development plans, unless a zoning condition, contract provision, other city code provision or state law require the detailed site development plan to be approved by city council.

1. The planning division shall make its recommendations to the city plan commission within thirty days after a complete application is submitted.

2. The city plan commission shall hold a public hearing at its regular meeting that is within thirty days from receipt of department recommendations.

3. The commission shall consider the following information when approving a proposed detailed site development plan: the boundaries of the tract proposed for development; location and arrangement of structures; determine if the use conforms to applicable zoning regulations, determine if historic landmark commission approval has been granted for architectural design of all structures if located in a historic district and the design conforms to such approval; location of utility rights-of-way and easements and stormwater drainage; vehicular and pedestrian ways; on-site parking areas; location of open spaces and landscape planted areas.

4. In no instance shall the city plan commission have authority to vary the yard standards applicable to the district.

5. The city plan commission shall approve the plan if it complies with all applicable code provisions.

E. In the event of approval, applicant shall sign an agreement to develop the area in accordance with the approved detailed site development plan.

F. The approved detailed site development plan and agreement shall be filed with the zoning administrator and the executive secretary to the city plan commission.

G. Building permits may be issued in conformance with the approved detailed site development plan.

H. Detailed site development plan approval shall expire if construction is not started within four years from the date of approval. (Ord. 16653 § 2 (part), 2007)

(Ord. No. 17640, § 1, 8-30-2011; Ord. No. 17755, § 1, 3-20-2012; Ord. No. 019578, § 2, 12-12-2023)

20.04.160 Content of application.

Detailed site development plan applications shall be submitted in a digital form compatible with the city's system. Paper submittals of application documents shall be assessed the established fee for conversion of paper documents to digital format. The fee for conversion of paper documents to digital format shall be in the amount established by city council in the annual budget resolution, amendments to the budget resolution, or other appropriately adopted resolution or ordinance of the city council. Applications shall at a minimum include the following:

A. Legal description of area proposed to be developed or metes and bounds description and amount of land included certified by a professional engineer (P.E.) or a registered land surveyor;

B. The detailed site development plan showing the boundaries of the tract proposed for development; elevations or perspective of the building; location and arrangement, use, dimensions, square footage and height of all structures, including, where applicable; number of dwelling units in multifamily structures and number of bedrooms in each unit; yards, setbacks (number of feet); sidewalks and curb cuts; driveways; stormwater drainage; on-site parking spaces, to include loading and unloading berths; open spaces; landscape planted areas; size, design and location of exterior signs; screening walls; screening of on-site parking facilities;

C. Stamp or seal and signature of a professional engineer or architect preparing plans;

D. Proof of ownership (warranty deed, title commitment, etc.);

E. Tax certificate;

F. Fee as adopted by city council. (Ord. 16877 § 1, 2008; Ord. 16653 § 2 (part), 2007)

(Ord. No. 18817, § 1, 7-24-2018; Ord. No. 19244, § 2, 10-12-2021)

20.04.170 Modification of detailed site development plan.

A. Minor modifications to an approved detailed site development plan may be requested in

writing by the property owner and approved in writing by the zoning administrator if any of the following apply:

1. The minor modifications are in substantial conformity (see definition of "substantial conformity") to the approved detailed site development;

2. The minor modifications represent an improvement in the approved site plan; or

3. The minor modification is required by a governmental entity.

B. Changes other than minor modifications shall require new hearings and new approvals in the same manner as for review of the original site development plan. (Ord. 16653 § 2 (part), 2007)

Article IV. Master Zoning Plan Approval Process

20.04.200 Master zoning plan.

A. Master Zoning Plan (MZP).

1. As part of any zoning application for a mixed use district, a master zoning plan shall be required and shall accompany the application. The MZP shall provide sufficient details necessary about the proposed land uses and proposed development so that the El Paso City Council may determine their compatibility within the proposed district and the impact on the adjacent properties.

As part of the MZP, an application may propose and delineate subdistricts. A subdistrict is a geographic subcomponent of a larger mixed use district. Its purpose is to enable the incremental measurement and reconciliation of maximum dwelling units, density and other data required in the MZP to subsequent development. Where practical, a subdistrict's boundary should be consistent with natural geographic features, reflect manmade transitional barriers (such as roadways), or separate sharp changes in proposed land uses.

2. While the submittal requirements below reflect the use of subdistricts, their use is not required. Applications not using subdistricts shall be required to submit the same information but aggregated for the entire mixed use district. The MZP shall, at a minimum, include the proposed land uses and locations, as well as the information required below.

3. Submittal Requirements.

a. General Data Required for the Mixed Use District.

i. Legal description of area proposed to be developed or metes and bounds description of district;

ii. Total acreage as depicted on a survey certified by a registered land surveyor;

iii. Maximum proposed total number of dwelling units for all residential land uses combined;

iv. Maximum proposed total floor area for all nonresidential land uses combined, expressed in square feet.

b. General Data Required for Each Proposed Subdistrict.

i. Total acreage;

ii. Maximum proposed total number of dwelling units for all residential land uses combined;

iii. Maximum proposed floor area for all nonresidential land uses combined, expressed in square feet.

c. Property Development Regulations Required per Subdistrict by Land Use Type.

i. Proposed acreages for each proposed land use, including parks, open space, buffer zones, trails and school sites (as applicable);

ii. Minimum and maximum lot coverages;

iii. Minimum lot width;

iv. Minimum lot depth;

v. Minimum building setbacks:

a) Front,

b) Rear,

c) Cumulative front and rear,

d) Side-interior,

e) Side-street,

f) Cumulative side setbacks,

g) Garage;

vi. Maximum building height:

a) Primary structure(s),

b) Accessory structure(s);

vii. Maximum proposed density for each residential land use type expressed in dwelling units pre gross acre of developable land;

viii. Maximum proposed intensity for each nonresidential land use type expressed in floor area ratio (FAR).

d. Development Plan Map Requirements.

i. Overall development boundary, labeled with bearings and distances;

ii. General arrangement and acreages of existing and proposed land uses including open space;

iii. Proposed phasing boundaries;

iv. Layout and relationship of proposed development where adjacent to existing development;

v. General location and acreages for each proposed park, open space, buffer zone, trails and school site (as applicable), provided that any change in location may be approved administratively by the parks director.

4. A table or list depicting the proposed acreage for each land use type, park, open space, trail and school site (as applicable) shall accompany the MZP.

5. A written report shall accompany the MZP that describes the purpose, characteristics, components and timing of the proposed mix of land uses within the development, and includes a general statement of how the development relates to the city's comprehensive plan. A detailed description shall be required for each proposed land use, identifying the permissible uses for any subdistrict within the mixed-use district to determine the compatibility of such uses within the mixed use district.

6. A phasing schedule shall be submitted with the rezoning application that indicates the proposed phasing of the development, the approximate time frame in which construction and development is expected to begin and the duration of time required for completion of the development.

7. The application for mixed use zoning, to include the MZP shall be reviewed by the city plan commission (CPC) for recommendation to city council. The CPC may recommend any amendments or conditions to the MZP necessary to minimize incompatibilities between land uses within the development or between land uses and adjacent properties or with the stated purposes of zoning in this title.

8. As part of the approval and adoption of a mixed use district, the city council shall find that the development will promote compatible buildings and uses, and that such development will be appropriate in area, location and overall planning for the purpose intended, in accordance with the city's comprehensive plan and stated purposes of zoning in this title. The city council, in approving any mixed use district, will also be approving the MZP establishing the required zoning standards within the district. Approval of a mixed use district by city council designates the zoning for the property as stated in the ordinance approving such zoning and as depicted on the MZP. All development of the property, regardless of whether the property changes ownership, shall be in accordance with the master zoning plan.

B. Amendments to an Approved Master Zoning Plan. An applicant may request amendments to an approved MZP. These amendments shall be delineated as minor or major amendments according to the criteria set forth herein.

1. Major Amendments.

a. Any amendment meeting one or more of the criteria listed below or any other proposed change not considered a minor amendment as described below shall require resubmittal, review and approval of a new zoning application to amend the MZP by the CPC and city council. Major amendments shall follow the same procedural and notice requirements required for the initial approval of the MZP, except that the mixed use zoning district designation shall not be revised unless requested by the applicant. If a change within a subdistrict constitutes a major amendment, as defined herein, requiring an amendment to the MZP, the CPC and city council shall review the proposed change for compatibility within the subdistrict and the adjacent subdistricts.

i. Any change to the overall mixed use district boundary.

ii. Any change to the approved mix of land use types within a designated subdistrict that increases the nonresidential intensity of development within that subdistrict by ten percent or more of the relevant characteristic(s) of development intensity, provided that the total projected nonresidential development intensity within the entire MZP shall not increase by ten percent of such characteristic(s). For purposes of this section, intensity may be measured by a single characteristic or by multiple characteristics as appropriate to the land use type, including, but not limited to, FAR, parking, and vehicular trips generated.

iii. Any change to the boundary of a land use within a subdistrict that results in the relocation of ten percent or more of the area of that land use.

iv. Any change to the boundary of a subdistrict that results in the relocation of ten percent or more of the area of the subdistrict.

v. An increase of ten percent or more of the originally approved number of projected dwelling units within a designated subdistrict, provided that the total projected dwelling units within the entire MZP shall not increase by ten percent.

vi. An increase of ten percent or more of the originally approved floor area for nonresidential uses within a designated subdistrict.

vii. Any reduction to the public or private open space components within a designated subdistrict.

viii. A twenty percent or greater increase in the height of structures by land use type within a designated subdistrict.

ix. A ten percent or greater reduction in the originally approved setbacks by land use type within a designated subdistrict.

x. A five percent or greater increase in lot coverage by structures by land use type within a designated subdistrict.

xi. Any changes within and/or between subdistricts that, when aggregated result in an increase to one or more of the aforementioned variances for the mixed use districts as a whole.

xii. Any change which would result in the juxtaposition of incompatible land uses.

b. Approval of a major amendment may be granted upon a finding that:

i. The requested amendment is in general conformity with the stated purposes of this section and the purposes of the specific zoning district to which the property is subject to;

ii. The requested amendment meets all other applicable zoning, building, drainage, water quality, and safety code requirements, and any other applicable law or regulation; and

iii. The requested amendment will have no significant adverse impact on the health, safety, or general welfare of surrounding property owners or the general public, or such impact will be substantially mitigated.

2. Minor Amendments. An amendment will be deemed minor if it is a change to the timing or phasing of the proposed development or if it does not involve any one of the foregoing provisions of a major amendment. The minor amendment process is limited in nature and may not be used by the applicant to exceed the numeric variance permitted by subsection (B)(1) above.

a. Minor amendments shall be submitted in writing to the planning division and accompanied with three copies of the revised MZP. Minor amendments may be acted upon administratively by the planning official, only upon the finding that the amendment meets all of the following requirements:

i. The requested amendment is in general conformity with the stated purposes of this section and the purposes of the specific zoning district to which the property is subject to;

ii. The requested amendment meets all other applicable zoning, building, drainage, water quality, and safety code requirements, and any other applicable law or regulation; and

iii. The requested amendment will have no significant adverse impact on the health, safety, or general welfare of surrounding property owners or the general public, or such impacts will be substantially mitigated.

b. A decision of the planning official to deny a minor amendment shall be binding. Requests for minor amendments shall be acted upon within fifteen days of the receipt of the written request for amendments.

c. In no instance shall the planning official approve a minor amendment that results in a change in conditions imposed as part of the zoning ordinance approval, or any subdivision plan, site plan, contract condition or other condition applicable to the property.

d. Any change in location of parks and trails maybe approved administratively by the parks director.

C. Reserved.

D. Incentives.

1. An applicant with an approved MZP may utilize the alternative subdivision design standards (Title 19, Section 19.26.050), so long as the development is in accordance with the MZP.

2. Applications under this section shall be processed with priority on a "fast-track" basis, defined as follows:

a. Processing for mixed use development plans: thirty days;

b. Processing for an MZP or other application that requires city council approval: approximately sixty days (minimum) for final approval.

3. The city shall waive application fees for rezoning, mixed use development plans, and any major or minor amendment applications.

E. Applicability. While ownership of a project may subsequently be transferred, in whole or in part, a MZP shall continue to be implemented and maintained on the total acreage of the mixed use district. (Ord. 16915 § 2, 2008: Ord. 16653 § 2 (part), 2007)
(Ord. No. 17442, § 8, 10-26-2010; Ord. No. 19244, § 3, 10-12-2021)

Article V. Special Permit Approval Process

20.04.260 Special permits generally.

A. The city council may by special permit after hearing and report by the city plan commission authorize the location of the uses subject to special permits identified in the district regulations.

B. In addition to the development standards identified in this title, city council shall impose such additional conditions and safeguards including those related to architecture, site plan, landscape planting and screening as required to protect the public welfare and to conserve and protect property and property values in the immediate vicinity of the special permit.

C. Applications for special permits shall be filed with the executive secretary of the city plan commission. The application shall be reviewed by the planning division for completeness and shall not be processed until any missing information is supplied by the applicant and the fee has been received. A complete application shall be scheduled for action by the city plan commission, which shall have forty-five days in which to recommend approval, disapproval or approval with conditions or amendments.

D. Where disapproval is recommended the procedure shall be concluded unless the applicant within fifteen days of disapproval appeals the recommendation to city council. In the event of such a request the executive secretary of the city plan commission shall forward to the city council a statement of the reasons for disapproval.

E. Applications for special permits shall include a detailed site development plan that complies with Article III.

F. Special permits are automatically terminated whenever conditions made a part of them are not complied with, and construction shall stop or occupancy be discontinued until the violation ceases. (Ord. 16877 § 2, 2008; Ord. 16653 § 2 (part), 2007; Ord. No. 19244, § 4, 10-12-2021)

20.04.270 Special permits for planned residential developments.

A. A planned residential development shall occupy at least the minimum site area established in the district regulations. City council may approve a special permit for a planned residential development with general lot sizes and setbacks below the minimum of the underlying zoning district when Section 20.04.320(D) requirements have been met. The proposed development shall additionally meet the following requirements necessary to protect the public health, safety and general welfare of the community.

B. Where permitted in a district, and in order to foster the attractiveness of a residential development and its surrounding neighborhoods, a planned residential development may be established based on the following criteria:

1. Evaluation Criteria.

a. Proposed buildings shall be sited harmoniously to the terrain and to other buildings in the vicinity that have a visual relationship to the proposed buildings. For purposes of this subsection, harmoniously shall not be deemed to require that the same architecture or same type of building materials be uniformly used.

b. With respect to vehicular and pedestrian circulation and parking, special attention shall be given to the location and number of access points to public streets, width of interior drives and access points, relationship of vehicular and pedestrian traffic, and the arrangement of parking areas that are safe and convenient.

2. General Requirements.

a. Private streets and gates shall be permitted within a planned residential development and shall conform to the design standards enumerated in Title 19 (Subdivisions) of the El Paso City Code.

b. The minimum site area for a planned residential development shall be one acre, within which only residential uses of the base-zoning district shall be permitted. Extensions to a planned residential development from a common boundary shall be permitted in increments of less than one acre.

c. The minimum area requirement of the base-zoning district may be reduced by no more than twenty-five percent for lots within a planned residential development; provided, however, that the maximum density permitted by the base-zoning district shall apply in all cases except as otherwise approved by any applicable special permit granted pursuant to Section 20.12.040(B).

d. The setback requirements of the base-zoning district shall not apply to a planned residential development, except as follows:

1. The distance between buildings shall be a minimum of ten feet except as otherwise permitted in this title;

2. The length of the driveway shall not be less than twenty feet as measured from the face of the garage or carport to the dwelling side of the sidewalk, or to the property line where there is no sidewalk.

e. The perimeter of the planned residential development shall be designed to insure compatibility with adjacent existing or potential development by provision of compatible uses and structures.

f. No building shall exceed the height requirements of the base-zoning district.

g. Consideration in the site plan review and evaluation process shall include the following:

1. The nature and character of the development and adequacy of the buffer between proposed improvements on the site and adjacent property;

2. The adequacy of utilities, access, drainage and other necessary supporting facilities that have been or will be provided;

3. The adequacy of the design, location and arrangement of driveways and parking spaces so as to provide for the safe and convenient movement of vehicular and pedestrian traffic without adversely affecting the general public or adjacent developments.

h. A planned residential development shall be an architecturally integrated subdivision, whether unified by similar use and density, design, building materials, or open space and streetscape

elements. (Ord. 16653 § 2 (part), 2007)

20.04.280 Special permits for planned residential developments—Maximum dwelling units.

The maximum number of dwelling units that may be permitted shall be obtained by dividing the site area by the minimum lot area required in the underlying district per dwelling unit. The minimum lot area is used only as a factor for calculating density and is not intended to require minimum lot size standards. This number may be increased by application of the density incentives found in Chapter 20.12 of this title. (Ord. 16653 § 2 (part), 2007)

20.04.290 Special permits for planned residential developments—Public uses.

Lands reserved for parks, recreation and permanent open space may be included in the site area for the purpose of density calculations as may one-half of any area dedicated for public school purposes. Other permitted nonresidential uses may be incorporated in the plan, but may not be a part of the site area for the purpose of density calculations. (Ord. 16653 § 2 (part), 2007)

20.04.300 Special permits for planned residential developments—Commercial and industrial uses.

A. Where a planned residential development includes more than one hundred acres, a maximum five percent of the total site area may be used for those commercial uses that would serve the planned development.

B. Where a planned residential development includes more than one thousand acres, a maximum five percent of the total site area may be used for commercial purposes and a maximum of ten percent of the total area may be used for industrial purposes.

C. Where commercial or industrial uses are incorporated in the planned residential development, council approval shall include appropriate amendments to the zoning map and may require that construction of commercial and industrial uses not be started until twenty-five percent of all of the residential units are occupied. (Ord. 16653 § 2 (part), 2007)

20.04.310 Compliance with special permits.

Special permits shall be valid only when all conditions of the permit are complied with. Failure to comply with all conditions under which a special permit has been issued shall constitute an offense which shall be punishable as provided in Chapter 20.24 of this title. Failure to comply with all conditions under which a special permit has been issued shall also constitute grounds for suspension of building and occupancy permits upon written notice from the building official. (Ord. 16653 § 2 (part), 2007)

20.04.320 Special permit approvals.

A. Building and occupancy permits shall not be issued to any building or use identified in this title as requiring a special permit until after approval of such special permit by the city council.

B. Building and occupancy permits shall not be issued for any building or use identified in this title as requiring an approved detailed site development plan as required by Article III, until such approval has been granted.

C. No building or occupancy permit may be granted for the erection, rehabilitation, enlargement or demolition of any building in a designated historic area or for any building that is a designated historic landmark until prior approval has been granted by the historic landmark commission.

D. The city council, after hearing and report by the city plan commission, may approve a special permit upon find that the proposed development meets the following minimum requirements necessary to protect the public health, safety and general welfare of the community:

1. The proposed development complies, except to the extent waived, varied or modified pursuant to the provisions of this title, with all of the

standards and conditions applicable in the zoning district in which it is proposed to be located; complies with any special standard applicable to the particular type of development being proposed, or to the particular area in which the development is proposed; complies with any special approvals required in connection with such development or area;

2. The proposed development is in accordance with and in furtherance of the comprehensive plan, any special neighborhood plans or policies adopted by the city regarding the development area, or any approved concept plan;

3. The proposed development is adequately served by and will not impose an undue burden upon the public improvements and rights-of-way by which it will be served or benefited, or which exist or are planned for installation within its boundaries or their immediate vicinity. A traffic impact study may be required to determine the effects of the proposed development on the public rights-of-way;

4. Any impacts of the proposed development on adjacent property are adequately mitigated with the design, proposed construction and phasing of the site development;

5. The design of the proposed development mitigates substantial environmental problems;

6. The proposed development provides adequate landscaping and/or screening where needed to reduce visibility to adjacent uses;

7. The proposed development is compatible with adjacent structures and uses;

8. The proposed development is not materially detrimental to the enjoyment or valuation of the property adjacent to the site.

E. The applicant may request that the city plan commission waive one or more of the criteria based on its nonapplicability to the proposed development. The city plan commission, upon a recommendation of the planning official, shall make a determination on the nonapplicability of the criteria and shall render a finding based on such determination, and shall forward their recommendation to city council for final review and approval.

(Ord. 16653 § 2 (part), 2007; Ord. No. 17442, § 9, 10-26-2010; Ord. No. 19244, § 5, 10-12-2021)

Article VI. Changes and Amendments

20.04.340 City council authority.

The city council on its own motion or on request may amend, supplement or change by ordinance, the boundaries of the districts or the regulations herein established. (Ord. 16653 § 2 (part), 2007)

20.04.350 Public proposals.

Public proposals for amendment of the zoning regulations may be made by the city plan commission, board of adjustment or any other public agency or official. (Ord. 16653 § 2 (part), 2007)

20.04.360 Private requests.

Private requests for amendments to the zoning map may be made by an owner of property. A contract to purchase real estate shall not enable a person to request an amendment. (Ord. 16653 § 2 (part), 2007)

20.04.370 Application form.

A. Application forms for proposals and requests shall be provided by the planning official and, when completed, shall be filed with the executive secretary of the city plan commission. The application shall be reviewed by the planning division for completeness and shall not be processed until any missing information is supplied by the applicant and the fee has been received.

B. Reserved.

C. The fee required by this section and Section 20.04.410 of this chapter, and established by the city council in accordance with Section 20.04.800 of this chapter, shall not be required for an application submitted by a property owner for the sole purpose of designating the property with

a historic "H" overlay. (Ord. 16877 § 3, 2008: Ord. 16653 § 2 (part), 2007)
(Ord. No. 17442, § 10, 10-26-2010; Ord. No. 19244, § 6, 10-12-2021)

20.04.380 Application requirements.

Application documents shall be submitted in a digital form compatible with the city's system. Paper submittals of application documents shall be assessed the established fee for conversion of paper documents to digital format. The fee for conversion of paper documents to digital format shall be in the amount established by city council in the annual budget resolution, amendments to the budget resolution, or other appropriately adopted resolution or ordinance of the city council. The application shall at a minimum contain the following:

A. One copy of the zoning map, outlining in red the area proposed for change of zoning.

B. Where land proposed for rezoning is vacant or unused land, a generalized site plan showing the general features or concept of development.

C. Where land proposed for rezoning is occupied by a building(s), or use(s), a detailed site development plan shall be required in accordance with Section 20.04.160(B).

D. The lettering shall be so placed on the plans so as to be read from the bottom or from the right-hand side of the sheet, and the north point shall be directed away from the reader.

E. Proof of notice of proposed application to any recognized neighborhood association required to receive notice pursuant to Chapter 2.102 of this Code.

F. A traffic impact analysis may be required, at the rezoning stage of the development, if the property is being rezoned to a more intense use or to a use that has the potential to increase the traffic impact on the adjacent traffic infrastructure. A traffic impact analysis shall be required at the rezoning phase, if such increase in intensity of use meets the applicability standards as set forth in Section 19.18.010(B) of this Code. (Ord. 16906 § 1, 2008; Ord. 16653 § 2 (part), 2007)
(Ord. No. 18652, § 1, 3-21-2017; Ord. No. 18817, § 2, 7-24-2018)

20.04.390 Referral to city plan commission.

A. All proposals and requests for changes and amendments shall be referred to the city plan commission for report and recommendation. Upon receipt of a proposal or request for change and amendment, the executive secretary shall notify the property owner or the applicant of whether or not the proposal or application is complete and whether or not it conforms with the comprehensive plan.

B. Failure to complete an application in satisfactory form within three months shall result in dismissal of such application. (Ord. 16653 § 2 (part), 2007)

20.04.400 Notice of public hearing before city plan commission.

A. The planning official shall schedule a public hearing before the city plan commission not less than fifteen days and not more than forty-five days from receipt of complete proposal or application with payment of fee. Notice shall be sent by mail to owners of all property within three hundred feet of the property to be rezoned, not less than ten days nor more than thirty days in advance of the hearing. Notice shall include the time, place and purpose of such a hearing.

B. Where the change does not amend the district map and is a general change in the text of the regulations, or the comprehensive plan, notice shall be posted as required by state law.
(Ord. 16653 § 2 (part), 2007; Ord. No. 17442, § 11, 10-26-2010; Ord. No. 19244, § 7, 10-12-2021)

20.04.410 Fees.

Applications for public hearing shall be accompanied by a filing fee to defray the costs of publication, the giving of notices, and the general expenses in connection with processing of the application. (Ord. 16653 § 2 (part), 2007)

20.04.420 Withdrawal of application.

Once notices for a public hearing have been sent and/or posted, the hearing shall be held unless the applicant withdraws his application in which event no request for the same or similar change shall be accepted for one year at which time a new application including payment of new fees may be filed. No fees are to be refunded in the event of a withdrawal. (Ord. 16653 § 2 (part), 2007)

20.04.430 Recommendation by commission.

A. A report on the commission's recommendation and merits of the proposal and requested change shall be forwarded for introduction to city council within sixty days from the date of the commission's final consideration.

1. Extension. An applicant may request the city manager or designee to extend the sixty day introduction period requirement for an additional sixty days. The request must be in writing and must be submitted prior to expiration of the initial sixty day prescribed period. In the event the application is not forwarded to city council by the end of the extended prescribed period, the application shall expire and a new application and fee shall be required in order to re-submit the application to the city plan commission.

B. The commission may recommend approval, approval with modification, or disapproval.

C. The report of the commission shall include the relation of the proposed change to the city's comprehensive plan, and the effect upon the natural environment, and upon its surrounding neighborhood and the city as a whole.

D. In the event of recommendation for disapproval by the city plan commission, the procedure shall be concluded unless the applicant within fifteen days of the city plan commission recommendation appeals the recommendation to the city council. In the event of such an appeal, the executive secretary shall forward the application and appeal to the city council for introduction within thirty days of the request for appeal along with a statement giving the city plan commission's reasons for recommending disapproval.

1. Extension. At the request of the applicant, the thirty day prescribed period to forward the appeal to city council for introduction may be extended by the city manager or designee for an additional thirty days. The request shall be in writing and shall be submitted prior to expiration of the initial thirty-day prescribed period. In the event the appeal is not forwarded to city council for introduction by the end of the extended prescribed period, the procedure shall be concluded. (Ord. 16653 § 2 (part), 2007; Ord. No. 18817, § 3, 7-24-2018; Ord. No. 19244, § 8, 10-12-2021)

20.04.440 Additional information from applicant.

Where the commission recommends a modification of the request, transmission of the report of the commission to the city council shall not take place until accompanied by a letter from the applicant indicating his acceptance of, or refusal to accept, the modifications recommended by the commission. (Ord. 16653 § 2 (part), 2007)

20.04.450 Council action.

A. The city council after public hearing notice as required by state law may enact the change or amendment with or without modification and may follow the recommendations of the city plan commission by majority vote.

B. A majority vote of all members of the city council is required to overrule a recommendation of the city plan commission that an application for amendment of the ordinance be denied. Any decisions by the city council shall set forth the reasons for their action. (Ord. 16653 § 2 (part), 2007)

20.04.460 Protest procedure.

In case of a protest, the procedure outlined in and the law set out in Section 211.006(d) of the Texas Local Government Code, 2006 Edition and

as amended, shall be applicable. (Ord. 16653 § 2 (part), 2007)

20.04.470 Resubmission of application.

No application for change of zoning for a given property may be resubmitted within twelve months from date of action by the commission or council, whichever is later, unless the commission finds that a substantial change in conditions has occurred. (Ord. 16653 § 2 (part), 2007)

20.04.480 Dismissal for want of prosecution.

A. If an applicant fails to appear or be represented at the time his case is scheduled for hearing before the commission or the council, as the case may, in the discretion of the body holding the hearing, be postponed to a definite date, or may be heard without the applicant's presence or representation. If the applicant fails to appear or be represented at the postponed hearing his case may be automatically dismissed for want of prosecution. Before the date of the postponed hearing the applicant may ask for an extension of time, and the body before which the postponed hearing is to be held, may, if convinced that the delay requested is unavoidable and not due to the applicant's fault, extend the date of the postponed hearing by not more than sixty days.

B. After a case is dismissed for want of prosecution the applicant cannot again apply for rezoning of the same property or any part thereof without filing a new application. All the procedures (including fees, notices and hearings) will apply as in the case of an original application; and the new application cannot be filed in less than twelve months from the date of dismissal, unless the commission finds that a substantial change in conditions has occurred since that date. (Ord. 16653 § 2 (part), 2007)

Article VII. Public Hearings

20.04.500 Generally.

All public hearings required by this chapter shall be conducted in accordance with the requirements of this article. (Ord. 16653 § 2 (part), 2007)

20.04.510 Scheduling.

All applications requiring a public hearing before the city plan commission or zoning board of adjustment shall be scheduled on a first-come, first-served basis, unless otherwise authorized by the chairman of the commission or majority vote of the board, as applicable. (Ord. 16653 § 2 (part), 2007)

20.04.520 Notice.

Where a public hearing is required by State law, notice shall be given in the manner specified below:

A. Content of Notice. Required mailed notices and notices by publication shall include the date, time, and place of the hearing, a description of the subject matter of the hearing and the body holding the hearing. The mailed notices shall be in the form of a standard letter or a postcard and shall include the information in both English and Spanish. The postcard shall be a minimum size of 5.5 inches by 8.5 inches. Required on-site posting of notice shall be as specified in subsection B.2.d. of this section.

B. Provision of Notice. Notice will be given in the following manner and as per Chapter 2.102 of this Code, as applicable:

1. In all cases, by mail to the applicant, or owner of the property that is subject of the application, if different;

2. On applications for special permits, amendments to zoning conditions and amendments to the district map, additional notice shall be given as follows:

a. Notice of hearing before the city plan commission shall be given to all owners of real prop-

erty by mail, as indicated by the most recently approved municipal tax roll within three hundred feet of the lot line of the subject property.

i. In addition to notice given to the owners of the real property within three hundred feet of the lot line of the subject property, if a multifamily dwelling is located on any parcel of real property within the three hundred feet of the lot line of the subject property, notice shall be provided to the property manager of the multifamily dwelling.

b. When applications for special permits, amendments to zoning conditions, and amendments to the district map involve a personal wireless service facility (PWSF) or public utility facility, notice of hearing before the city plan commission shall be given by mail to all owners of real property, as indicated by the most recently approved municipal tax roll within five hundred feet of the lot line of the subject property.

i. In addition to notice given to the owners of the real property within five hundred feet of the lot line of the subject property, if a multifamily dwelling unit is located on any parcel of real property within the five hundred feet of the lot line of the subject property, notice shall be provided to the property manager of the multifamily dwelling.

ii. The applicant for a special permit, an amendment to zoning conditions, or an amendment to the district map involving a public utility facility is responsible for providing the required notice and for all costs of providing the required notice. The applicant shall provide written documentation to the city that the required notices have been provided unless the applicant has requested that the city provide the notices of the hearing and reimburses the city for all its expenses upon receipt of a city invoice.

c. Notice of hearing before the city council shall be given as follows:

i. On first reading—by publication in a newspaper of general circulation in the city not less than fifteen days prior to the day of the public hearing and posted in accordance with provisions of Chapter 551 of the Texas Government Code (the Texas Open Meetings Act).

ii. The published notice shall contain:

1. The name of the property owner(s) requesting the special permits, amendments to zoning conditions, or amendments to the district map;

2. The legal description of the property or the physical address assigned to the property; if no address has been assigned, the notice shall contain the name and block number of the street(s), if any, abutting the property for which the special permit, amendment to zoning conditions, or amendment to the district map has been requested, and

3. An electronic link on the city's website containing the city council agendas at which the application will be introduced and the identified public hearing date at which the application will be considered.

d. On-site posting of notice by an applicant is required for parcels of one acre or more in size. The on-site posting of notice shall comply with the following:

i. Location. The notice should be placed on the proposed site so that it is clearly visible and legible from each right-of-way abutting the property.

1. The sign(s) shall be placed perpendicular to the street frontage and be double sided.

2. One sign per right-of-way shall be required. However, if a property identified in an application is separated by a right-of-way, on-site postings shall be required on each side of the property divided by the right-of-way.

3. Required signage shall be made of durable material. Signage shall be properly anchored to the ground with at least two posts, a building, a fence, or a wall. The top of the text portion of such signage shall be a minimum of five feet above ground.

ii. Duration of Posting. On-site posting shall be continuous until final city council action on the application. Posting shall commence at least fifteen days prior to the date of the first public hearing at the city plan commission. The applicant shall provide a digital or printed photograph to the city showing that all required signage has been properly placed on the property. Failure to

provide such photograph proving compliance with signage requirements shall result in postponement of the application until such time as a photograph is received. Any sign required by this provision shall be removed no later than ten days after final action on the application. Posting is continuous so long as lost, stolen, or vandalized signage is replaced within five days following the mailing of a letter to the applicant by the city notifying the applicant that the sign has been lost, stolen, or vandalized.

iii. Size and Content. A sign area with a minimum width of eight feet and a minimum height of four feet shall be required. The sign shall provide a caption stating "Location of Proposed Rezoning (or other type of application). Public Hearings are Scheduled. Please Call (telephone number provided by the planning official." The caption shall also be provided in Spanish. The caption shall be a minimum of four inch bolded block in black lettering and appear on a light green background.

iv. Zoning Validity. Any otherwise properly enacted zoning classification shall not be invalidated by failure to comply with these on-site posting requirements.

3. On applications for amendments to the text of this chapter, notice of hearing before the city plan commission shall be posted in accordance with provisions of Chapter 551 of the Texas Government Code (the Texas Open Meetings Act).

4. Notice of hearing before the city council shall be as follows:

On first reading—by publication in a newspaper of general circulation in the city not less than fifteen days prior to the day of the public hearing and posted in accordance with provisions of Chapter 551 of the Texas Government Code (the Texas Open Meetings Act);

5. On appeals or applications to the zoning board of adjustment, notice of time, place and purpose of hearing before the board shall be given by letter or postcard not less than ten days prior to the date of hearing to the owners of real property, as indicated by the most recently approved municipal tax roll within two hundred feet of the area to be considered. (Ord. 16653 § 2 (part), 2007) (Ord. No. 17442, § 12, 10-26-2010; Ord. No. 18105, § 1, 12-17-2013; Ord. No. 19016, § 1, 1-7-2020)

20.04.530 Conduct.

Conduct of the hearing shall be in accordance with this Code and the bylaws and regulations of the appropriate hearing body. (Ord. 16653 § 2 (part), 2007)

Article VIII. Private Streets, Common Open Space and Other Similar Properties

20.04.550 Maintenance.

A. Where private streets, common open space or other similar types of property are included as part of a planned development, the applicant shall submit documentation, subject to plan commission approval, for assuring continued retention and perpetual maintenance of common open space and perpetual maintenance and repair of private streets by restrictive covenants, deed restrictions or other methods.

B. The documentation shall be submitted with the appropriate subdivision plat to the executive secretary of the city plan commission, who shall coordinate the review with the appropriate city agencies and other agencies, advise the applicant of findings, and submit, with the overall application to the city plan commission for their review and approval.

C. The approved documents, embodying restrictive covenants, deed restrictions, or other methods of giving such assurance shall be filed for record as a part of the approved subdivision plat or approved development permit.

D. All private streets and shall meet the standards and requirements set forth in Section 19.15.150 of this Code. (Ord. 16907 § 1, 2008; Ord. 16653 § 2 (part), 2007)

20.04.560 Private streets.

Where authorized by the commission in approving a subdivision plat, streets may be permitted to remain in private ownership provided they

meet standards contained in the subdivision ordinance for design and construction of streets, taking into consideration the needs of the project and adjacent uses, and are approved by the director of the city development department or other designee of the city manager. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17442, § 13, 10-26-2010; Ord. No. 17801, § 2, 6-5-2012, eff. 6-11-2012)

20.04.570 Right-of-way and pavement widths.

The right-of-way and pavement widths for internal ways, streets and alleys serving the development shall be determined from standards contained in the subdivision ordinance and in conformity with the estimated needs of the full development proposed and the traffic to be generated thereby, and shall be adequate and sufficient in size, location and design to accommodate the maximum traffic, parking and loading needs and the access of firefighting equipment and police vehicles. (Ord. 16653 § 2 (part), 2007)

Article IX. Permits and Licenses

20.04.600 Building permits.

A. All applications for a building permit shall require conformity with all relevant provisions of this Code.

B. The city engineer or the building official may require construction or reconstruction of sidewalks, curbs and gutters or street surfacing prior to issuance of a building permit or as a part of the issuance of the permit.

C. No building permit lawfully issued prior to the effective date of the ordinance codified herein, or of any amendment hereto, and which permit is in full force and effect at said date, shall be invalidated by the passage of the ordinance codified herein, or any such amendment, but shall remain a valid permit, subject only to its own terms and provisions and ordinances, rules and regulations pertaining thereto, and in effect at the time of the issuance of such permit; provided, that all such permits shall expire on the effective date of the ordinance codified herein, unless actual construction shall have heretofore begun and continued pursuant to the terms of the permit.

D. Whenever application for a building permit or certificate of occupancy is made for a use other than those specifically named as permitted uses, but being of a similar type of operation as those named, the zoning administrator shall have the authority, pursuant to Section 20.04.555, to make a determination as to whether or not the proposed use shall be permitted in the district. (Ord. 16653 § 2 (part), 2007)

20.04.610 Building permit application.

A. All applications for building permits shall comply with provisions of Title 18 of this Code.

B. The drawings shall contain suitable notations indicating the proposed use of all land and buildings, including the number of families or dwelling units or rental units proposed.

C. A record of the original copy of such applications and plans shall be kept as provided in Title 18 of this Code. In a particular case, the building official may waive the requirement for plans when such plan is clearly unnecessary to a decision or the record on the case. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17235, § 2, 11-10-2009; Ord. No. 17442, § 14, 10-26-2010)

20.04.620 Manufactured home or trailer placement.

Permits for placement of manufactured homes or trailers shall comply with Section 18.02.103.4 of the Building Code. (Ord. 16653 § 2 (part), 2007)

20.04.630 Historic landmark alterations—Certificate of appropriateness required.

No alterations or changes shall be made to any designated historic landmark without the owner or owners first having obtained a certificate of appropriateness; nor shall any designated historic landmark be removed or demolished without a

certificate of removal or demolition. (Ord. 16653 § 2 (part), 2007)

20.04.640 Temporary permits.

A temporary permit shall be required for temporary signs, construction operating facilities and machinery, for real estate offices that are accessory to a land development project, for accessory and nonaccessory tents and temporary structures, amusement facilities and for any other temporary use. (Ord. 16653 § 2 (part), 2007)

20.04.650 Storage of explosives.

A temporary special permit shall be required for storage of explosives. (Ord. 16653 § 2 (part), 2007)

20.04.660 Signs in public rights-of-way.

Except as permitted in this title, a special privilege license shall be required for all signs located in public rights-of-way. (Ord. 16653 § 2 (part), 2007)

Article X. Certificate of Occupancy and Compliance

20.04.700 Generally.

A. No vacant land shall be occupied or used, other than as authorized by a temporary permit, except for agricultural uses associated with the conduct of a farm, until a certificate of occupancy shall have been issued by the building official.

B. Certificates of occupancy and compliance shall be issued pursuant to provisions of Title 18 of this Code. The building official shall keep a record of all certificates.

C. A certificate of occupancy may be issued for a part of a proposed building or development or section thereof completed in accord with the terms of this Code even though the entire building or development or section thereof has not been completed.

D. A certificate of occupancy shall be required for all nonconforming uses or structures in accordance with provisions in Section 20.22.070 of this title.

1. In cases where the city officially notifies an owner or owners that a nonconforming condition exists, an application shall be required to be filed within twelve months of the date on which the official notice was received. Notification of a nonconforming use or structure shall be made by the zoning administrator or a duly appointed representative. Failure to apply for a certificate of occupancy within such twelve-month period shall terminate the right to operate such nonconforming use or structure. The requirement for submittal of affidavits and plans as previously described shall also apply.

2. Upon issuance of a certificate of occupancy for a nonconforming use or structure, the use or structure shall be deemed as legal nonconforming.

E. The building official may issue a temporary and contingent certificate of occupancy and compliance for a period not to exceed six months where, because of the unusual nature of the use, a trial period of operation is in his opinion the most appropriate way to determine actual compliance with the terms of the ordinance codified herein. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17235, § 2, 11-10-2009; Ord. No. 17442, § 15, 10-26-2010)

Article XI. Agreements and Bonds

20.04.750 Authority to require.

When provisions of the ordinance codified herein require an agreement to construct certain improvements in order to obtain a building permit, the city council may require a bond in a form acceptable to the city attorney and in an amount approved by the building official enabling the city to construct the improvement or complete the construction in the event the project or part of the project is abandoned by an applicant. (Ord. 16653 § 2 (part), 2007)

Article XII. Fees

20.04.800 Adoption and display.

A. Fees required under this title shall be as adopted from time to time by the city council. Such fees shall be to defray the costs of review by appropriate city departments of such requests and applications, and for other administration and processing costs.

B. Copies of all fees adopted by city council under this title shall be displayed at the offices of the zoning administrator, the executive secretary of the zoning board of adjustment, and the executive secretary of the city plan commission. (Ord. 16653 § 2 (part), 2007)

20.04.810 Zoning verification requests.

A. The fees for processing of zoning verification requests shall be as adopted by city council.

B. The applicant for a zoning verification shall submit a written request to the zoning administrator giving an accurate legal description of the property, an address of the property, if known, and the proposed use of the property. The applicant shall pay the required fee to the city cashier at the time of submission of such request. Such fees shall be to defray the costs of administrating and processing such requests. (Ord. 16653 § 2 (part), 2007)

20.04.820 Home occupation license.

A. The city council shall adopt a fee for processing applications for home occupation licenses and annual renewals.

B. The applicant for a home occupation license shall, at the time of submission of the application, pay the required fee to the city cashier. A penalty for late submittal of the home occupation license renewal shall result in a late fee of twenty percent of the renewal fee to be paid in addition to the renewal fee as provided in this section. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17235, § 2, 11-10-2009; Ord. No. 17442, § 16, 10-26-2010)

20.04.830 Request for increased height of screening wall.

A. Pursuant to Chapter 20.16, the city council shall adopt a processing fee for requests to erect screening walls above six feet in height, and no greater than eight feet in height, on private property abutting any city property, including public accessways and drainage channels.

B. The applicant shall submit to the zoning administrator a written request for approval of such a screening wall. The request shall specify the address and legal description of the affected property, and shall be accompanied with three copies of an accurately drawn site plan showing the location of the proposed wall. The fee shall be paid to the city cashier through the office of the zoning administrator when such request is submitted. (Ord. 16653 § 2 (part), 2007)

20.04.840 Request to waive or amend mandatory wall requirement.

A. Pursuant to Chapter 20.16, the city council shall adopt a processing fee for requests to waive or amend the requirement for a mandatory six-foot high masonry wall when topographic conditions or common recreational areas negate the visual screening effect of the wall.

B. The applicant shall submit to the zoning administrator a written request that the requirement be waived or amended stating the reasons for such request. The request shall specify the address and legal description of the affected property, and shall be accompanied with three copies of an accurately drawn site plan showing the location of the request. The fee shall be paid to the city cashier through the office of the zoning administrator when such request is submitted. (Ord. 16653 § 2 (part), 2007)

20.04.850 Classification of use.

A. Prior to applying for a building permit or certificate of occupancy, the applicant may request a classification of use from the zoning administrator. The request shall be submitted in writing and shall accurately describe the intended use

including, but not limited to, identifying all structures, facilities and equipment needed to carry out the activities of the intended use. The zoning administrator may request additional information from the applicant to appropriately classify the use. (See Section 20.08.040 for classification of new or unlisted uses.)

B. The request for classification of a use shall be accompanied by a processing fee as adopted by city council and shall be paid to the city cashier at the time of submission of such request. Such fees shall be to defray the costs of researching, processing and maintaining records of such requests. (Ord. 16653 § 2 (part), 2007)

Article XIII. Enforcement

20.04.900 Administrative and enforcement activities.

A. It shall be the duty of the planning official and such other employees as are appointed by the city manager to interpret the provisions of this title.

B. The director of the planning and inspections department, the building official, employees of the code enforcement division, and other enforcing officers as defined or designated by the city manager, constitute authorized city officials and are authorized to enforce the provisions of this title, issue citations for violations of this title, and take all other actions authorized by this Code relating to the matters regulated under this title.

C. The employees designated in this section are authorized to make inspections of any property necessary to enforce the provisions of this title, as further provided in this Code.

(Ord. 16653 § 2 (part), 2007; Ord. No. 17442, § 17, 10-26-2010; Ord. No. 17801, § 3, 6-5-2012, eff. 6-11-2012; Ord. No. 19244, § 9, 10-12-2021)

Chapter 20.06

ZONING DISTRICTS AND MAP

Sections:

20.06.010 Districts established and enumerated.

20.06.020 Purpose of districts.

20.06.030 Official zoning map.

20.06.040 District boundaries.

20.06.050 Amendment to official zoning map.

20.06.060 Omitted land.

20.06.070 Annexed properties.

20.06.075 Annexation procedures.

20.06.080 Compliance with district standards and use regulations.

20.06.010 Districts established and enumerated.

In order to classify, regulate and restrict the location of businesses, trades, industries, residences and other land uses in accordance with the objectives of "The Plan for El Paso"; to regulate and restrict the location of buildings erected, reconstructed, altered or enlarged for specified uses; to regulate and limit the height and bulk of buildings hereafter erected, reconstructed, altered or enlarged; to regulate and limit the intensity of the use of lot areas; to protect and preserve places and areas of historical and cultural importance and significance; to regulate and determine the area of yards and other open spaces; and to regulate and limit the density of population, all property within the Corporate Limits is divided into zoning districts that are grouped in classes for convenience of reference as follows:

A. Residential Districts.

Light Density Residential Districts	
"R-1, R-2, R-2A, R-3 and R-3A"	Residential Districts
"R-4, R-5"	Residential Districts
"RMH"	Residential Mobile Home District
Medium Density Residential Districts	
"A-1"	Apartment District
"A-2"	Apartment District
"A-3"	Apartment District
"A-O"	Apartment/Office District
High Density Residential Districts	
"A-4"	Planned Apartment District
"A-3/O"	Apartment/Office High Density District
"A-M"	Apartment/Mobile Home Park District

B. Commercial Districts.

Neighborhood Commercial Districts	
"C-OP"	Office Park District
"C-1"	Commercial District
Community Commercial Districts	
"C-2"	Commercial District
"C-3"	Commercial District
Regional Commercial Districts	
"C-4"	Commercial District
"C-5"	Central Business District

C. Industrial and Manufacturing Districts.

Light Industrial Districts	
"M-1"	Light Manufacturing District
Heavy Industrial Districts	
"Q"	Quarry District
"M-2"	Heavy Manufacturing District
"M-3"	Unrestricted Manufacturing District

D. Special Purpose Districts.

"R-F"	Ranch and Farm District
"PMD"	Planned Mountain Development District
"S-D"	Special Development District
"U-P"	Union Plaza District
"P-R I"	Planned Residential District I
"P-R II"	Planned Residential District II
"P-C"	Planned Commercial District
"P-I"	Planned Industrial District
"SRR"	Special Residential Revitalization District
"R-MU"	Residential Mixed Use District
"G-MU"	General Mixed Use District
"I-MU"	Industrial Mixed Use District
"NOS"	Natural Open Space District
"URD"	Urban Reserve District

(Ord. 16653 § 2 (part), 2007)
(Ord. No. 17306, § 2, 4-6-2010; Ord. No. 17547, § 1, 5-3-2011)

20.06.020 Purpose of districts.

A. Residential Districts.

1. Light Residential Districts. The purpose of these districts is to promote and preserve residential development within the city to create basic neighborhood units. It is intended that the district regulations maintain a low density of dwelling units supporting a suburban-urban interface that permits developments utilizing varying lot configurations. The regulations of the districts will permit primarily single-family and two-family residential areas, and recreational and institutional uses incidental to and serving the neighborhood.

2. Medium Residential Districts. The purpose of these districts is to promote and preserve residential development within the city associated with a landscape more urban in appearance and permitting a mixture of housing types. It is intended that the district regulations allow for medium densities of dwelling units supported by higher intensity land uses located at the periphery of single-family neighborhoods providing that the overall character and architectural integrity of the neighborhood is preserved. The regulations of the districts will permit building types designed for transition from areas of low density residential neighborhoods to other residential areas, and certain nonresidential uses and support facilities.

3. High Residential Districts. The purpose of these districts is to promote and preserve a diversity of residential dwelling types at the highest densities within the city and to provide for the integration of compatible business and professional office uses to complement the areas. It is intended that the district regulations allow for concentrations of population through the use of multi-story facilities. The regulations of the districts will permit site diversification for high-density residential development in which adequate public facilities are available for present and future needs.

B. Commercial Districts.

1. Neighborhood Commercial Districts. The purpose of these districts is to serve the needs of surrounding residential neighborhoods by providing compatible neighborhood convenience goods and services that serve day-to-day needs. The regulations of the districts will permit location of business and professional offices and retail category uses within adjacent residential areas of medium and high densities.

2. Community Commercial Districts. The purpose of these districts is to accommodate establishments providing goods or rendering services which are used in support of the community's

trade and service establishments and serving multi-neighborhoods within a planning area of the city. The regulations of the districts will permit intensities designed to be compatible with each other and to provide for a wide range of types of commercial activity, including light automobile related uses.

3. Regional Commercial Districts. The purpose of these districts is to provide for locations for the most intensive commercial uses intended to serve the entire city. It is intended that the district regulations permit heavy commercial uses characterized by automotive and light warehousing. The regulations of the districts are intended to provide a transition from general business areas to industrial and manufacturing uses, and to accommodate major locations of commerce, service and employment activities. Within the central business district, more intensive commercial uses are allowed, the predominant of which are retail trade and service uses, providing less restrictive height and area regulations.

C. Industrial Districts.

1. Light Industrial Districts. The purpose of these districts is to provide locations for light-intensity industries involving manufacturing, assembling, distribution and warehousing. It is intended that the districts will serve the entire city and will permit supporting commercial uses. The regulations of the districts are intended to preserve a light industrial nature particularly with regard to noise, smoke, odors, dust, vibrations and other noxious conditions.

2. Heavy Industrial Districts. The purpose of these districts is to provide for the most intensive of industrial uses which may be characteristic of nuisance or hazardous conditions. It is intended that the districts will serve the entire city. The regulations of the districts will require reasonable standards for the protection and preservation of the compatibility of such uses and adjacent areas.

D. Special Purpose Districts.

1. "R-F" Ranch-Farm District. The purpose of this district is to provide for primarily fallow or agricultural areas within the city and to protect and conserve these areas within and adjacent to urban development. It is intended that this district afford areas where semi-rural (very-low density) residential and agricultural uses can be maintained without impairment from higher density residential, commercial or industrial development. The regulations of this district are designed to protect, stabilize and enhance the development of agricultural resources and to prohibit those activities that would adversely affect the urban-rural characteristics of this district.

2. "PMD" Planned Mountain Development District. The purpose of this district is to preserve and protect the significant natural features of the mountain development and hillside area within the city. It is intended that the regulations of the district provide design alternatives which help to minimize disturbances to the natural character of the area and which enhance the open space and aesthetic qualities of the land. The regulations of this district are designed to protect, stabilize and enhance the development of these environmentally sensitive lands and to preserve them from the encroachment of more intensive forms of development.

3. "S-D" Special Development District. The purpose of this district is to provide an opportunity for mixed-use projects, integrated in design, in certain older residential areas where there is a desire to permit a variety of nonresidential uses while maintaining the established residential appearance and landscaping of the area. The regulations of this district are designed to ensure compatibility with existing uses in the district; to permit the production, exhibit or sale of goods and the providing of services to the public in such older residential areas; to protect the traffic capacity of streets serving such older residential areas; to encourage flexibility by prescribing general performance standards for such older residential areas; and to protect the environment of adjacent areas. For the purpose of this district, older areas of the city shall be deemed those areas where development has existed for at least twenty-five years.

4. "U-P" Union Plaza District. The purposes of the Union Plaza District are: (1) to create a unique mixed-use environment with the provision of standards and guidelines designed to encourage the preservation of existing building architecture; (2) to ensure that reconstruction of existing buildings or new construction projects is consistent with the architectural and design guidelines adopted for the Union Plaza District; and (3) to encourage a variety of commercial and residential uses that coexist in a mixed-use area.

5. "P-R I" Planned Residential District I. The purpose of this district is to encourage planned developments as a means of creating a superior living environment through unified planning and building operations at lower residential densities. The regulations of the district are designed to encourage variety in housing needed to meet changing housing demands and to provide adequate community facilities well-located with respect to needs; to protect the natural beauty of the landscape; to encourage preservation and more efficient use of open space; and to offer an opportunity for design flexibility and encourage innovations which may result in improved relationships between uses of different types and between land uses and transportation facilities.

6. "P-R II" Planned Residential District II. The purpose of this district is to encourage planned developments as a means of creating a superior living environment through unified planning and building operations at higher residential densities. The regulations of the district are designed to encourage variety in housing needed to meet changing housing demands and to provide adequate community facilities well-located with respect to needs; to protect the natural beauty of the landscape; to encourage preservation and more efficient use of open space; to offer an opportunity for design flexibility; and encourage innovations which may result in improved relationships between uses of different types and between land uses and transportation facilities.

7. "P-C" Planned Commercial District. The purpose of this district is to provide for attractive and efficient retail shopping and personal service facilities of integrated design in appropriate locations to serve residential neighborhoods. It is intended that the district shall be laid out and developed as a unit according to an approved plan so that the purpose of the district may be accomplished. The district is adaptable to shopping centers of various sizes, as well as development of general business properties where the use of shared parking and access, together with careful site planning, will produce a stronger commercial area.

8. "P-I" Planned Industrial District. The purpose of this district is to establish an industrial environment for certain types of manufacturing, business or industrial uses which are compatible with any adjacent land use by performance, appearance, and general operating characteristics. The regulations of the district are designed so that all operations and activities, specifically including but not limited to, the storage of materials of all kinds are conducted within a building or appropriately screened.

9. "SRR" Special Residential Revitalization District. The special residential revitalization district (SRR) is established in recognition that developments containing both residential and commercial uses can create an appealing and vital urban environment when carefully designed. Developments approved for this district shall be designed to eliminate potential use conflicts through creative design methods. The SRR district allows for mixing residential environments with workplaces and services. Development in the SRR district must accommodate transportation systems, surrounding environments and pedestrian movements.

10. "R-MU" Mixed Use Residential District. The purpose of this district is to accommodate, encourage and promote innovatively designed developments involving neighborhood-serving residential and commercial land uses, which together form an attractive and harmonious unit of the city. The regulations of this district are intended to allow for developments that are intended by their size and nature of operation to provide service to a

neighborhood. It is intended that the district regulations permit uses that are compatible with the residential areas that the uses serve, and allow flexibility and encourage more creative, efficient and aesthetically desirable design and placement of land uses.

11. "G-MU" General Mixed Use District. The purpose of this district is to accommodate, encourage and promote innovatively designed developments involving the combining and mixing of uses allowed in various zoning districts with appropriate regulations, which together form an attractive and harmonious unit of the city. The regulations of this district are intended to allow for large-scale developments that are able to function as individual neighborhoods or an integrated collection (two or more) of individual neighborhoods supported by civic, commercial and recreational uses; as small-scale developments requiring flexibility because of unique design characteristics; or as transitional areas between dissimilar land uses. It is intended that the district regulations permit flexibility and encourage more creative, efficient and aesthetically desirable design and placement of land uses.

12. "I-MU" Mixed Use Industrial District. The purpose of this district is to accommodate, encourage and promote innovatively designed developments involving diverse commercial and industrial land uses, which together form an attractive and harmonious unit of the city. The regulations of this district are intended to allow for developments with good access and high visibility that are designed to create compatibility between diverse uses and adjacent zoning districts. It is intended that the district regulations permit uses serving the entire community, and allow flexibility and encourage more creative, efficient and aesthetically desirable design and placement of land uses.

13. "NOS" Natural Open Space District.

A. The purpose of this district is to preserve and protect natural resources and features including, but not limited to the mountain, hillside, arroyo, bosque and desert flatland areas within the city and to promote the conservation and restoration of these areas within and adjacent to urban and suburban development.

B. The regulations of this district are designed to protect ecologically sensitive lands and to prohibit those activities that would adversely affect the environmental characteristics of the district, while still permitting passive recreational use of the land. This district is also intended to preserve land that, if disturbed, may be susceptible to flooding and soil erosion due to steep slopes and runoff.

C. Property located within this district shall remain undeveloped, except as allowed in accordance with this title.

14. "URD" Urban Reserve District.

A. Urban Reserve District means an area that has development value with open space opportunities. The land may not be available for development either due to a lack of necessary infrastructure to support development or because the land is owned by the city.

B. Land may be zoned URD as a means of preserving the land for sustainable, transit served, form based code development and redevelopment when such land becomes necessary to serve growth in the region. Portions of URD zoned land may have intrinsic value as open space and may contain such features as scenic corridors, view sheds, arroyos, steep slopes, or protected habitat that should remain in its natural state once development occurs. (Ord. 16915 § 3, 2008; Ord. 16653 § 2 (part), 2007)

(Ord. No. 17306, § 3, 4-6-2010; Ord. No. 17490, § 3, 1-25-2011; Ord. No. 17547, § 2, 5-3-2011; Ord. No. 18531, § 3, 6-28-2016)

20.06.030 Official zoning map.

A. The boundaries of the zoning districts herein established are shown on a set of maps known and designated as the "Official Zoning Map Series, City of El Paso, Texas." These maps shall be kept and maintained on a geographical information system ("GIS") or other digital cartography system by the planning division. It shall

be the duty of the planning official to keep the official zoning map series up to date, clearly indicating all changes as soon as practicable after said changes occur. These maps shall be available to the public for inspection. Copies of superseded prints of the official zoning map series shall be kept for historical reference.

B. The boundaries of the districts are as shown on the original "Official Zoning Map Series, City of El Paso, Texas," dated June 5, 2007, and which are adopted and made a part of this chapter by reference as if the districts, notations and information shown thereon were fully contained and described within this title; and any amendments made thereto after the effective date of these regulations. Copies of any ordinances, plans or other documents effecting amendments to the official zoning map shall also be maintained by the planning division and shall be available to the public for inspection. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17442, § 18, 10-26-2010)

20.06.040 District boundaries.

Where uncertainty exists with respect to the boundaries of the various zoning districts as shown on the official zoning map series, the following rules shall apply:

A. A letter and/or number combination shown on the official zoning map series shall indicate that the regulations pertaining to the zoning district of that letter and/or number combination extend throughout the whole area within those zoning district boundary lines, except as otherwise provided by this section.

B. Zoning district boundaries approximately following (adjacent to or within) an alley, canal, lateral, drainage right-of-way, railroad right-of-way, railroad easement or street right-of-way, shall be construed to follow the centerline of the alley, canal, lateral, drainage right-of-way, railroad right-of-way, railroad easement or street right-of-way, and shall be so designated on the official zoning map series.

C. Zoning district boundaries approximately following (adjacent to) a platted lot line, tract line, survey line, or other jurisdictional boundary line, shall be construed to follow the platted lot line, tract line, survey line, or other jurisdictional boundary line, and shall be so designated on the official zoning map series.

D. Where the actual location of an alley, canal, lateral, drainage right-of-way, railroad right-of-way, railroad easement, street right-of-way, platted lot line, tract line, survey line, or other jurisdictional boundary line varies slightly from its location as shown on the official zoning map series, the actual location of the alley, canal, lateral, drainage right-of-way, railroad right-of-way, railroad easement, street right-of-way, platted lot line, tract line, survey line, or other jurisdictional boundary line shall control.

E. Zoning district boundaries dividing a platted lot or tract shall be construed as being located as shown on the official zoning map series, and distances shall be determined by the scale of the map.

F. Where a property has been or may hereafter be divided into platted blocks and lots, the zoning district boundaries approximately following (adjacent to) a platted lot line shall be construed to follow the platted lot line and shall be so designated on the official zoning map series. (Ord. 16653 § 2 (part), 2007)

20.06.050 Amendment to official zoning map.

Amendments to the official zoning map series shall be accomplished using the procedures that apply to map amendments in this title, as set forth in Chapter 20.04 (Administrative Provisions). (Ord. 16653 § 2 (part), 2007)

20.06.060 Omitted land.

If, because of error or omission in the official zoning map series, any property in the corporate limits is not shown as being in a zoning district, or if for any other reason the zoning cannot be properly determined on any property in the corporate limits by the zoning administrator, such property shall be classified as R-F (Ranch and Farm) zoning district until changed by amendment pursuant

to Chapter 20.04 (Administrative Provisions) of this title. (Ord. 16653 § 2 (part), 2007)

20.06.070 Annexed properties.

A. Any property hereafter annexed to the corporate limits shall be zoned in accordance with state law and this title. The city council and city plan commission may jointly consider, recommend and act, designating the zoning classification for the proposed annexed parcels proposal, at the same time of the public hearings required for annexation; provided, that all procedures required for amendments pursuant to Chapter 20.04 (Administrative Provisions) of this title and state law are complied with. If the property is annexed into the corporate limits without city council action designating a zoning classification for the property, the property shall be automatically zoned as R-F (Ranch and Farm) zoning district, and the zoning map revised accordingly, until changed by amendment pursuant to Chapter 20.04 (Administrative Provisions) of this title.

B. The establishment of any nonconforming situations for any development or use of land existing on any parcel on or before initiation of annexation proceedings by the city shall be subject to the requirements of Chapter 20.22 (Nonconforming Situations) of this title. (Ord. 16653 § 2 (part), 2007)

20.06.075 Annexation procedures.

A. Annexation of property shall follow the procedures stated in Chapter 43 of the Local Government Code.

1. Application. The owner(s) of a tract of land, or the owner's agent if authorized in writing, who desires that the tract be annexed into the corporate limits of the city, shall submit an annexation application, using the application form prescribed by the planning and inspections department to the planning and inspections department. However, if the proposed annexation is a result of an annexation petition granted by city council, no application shall be required, but the petitioners shall submit all other information and documentation required in this subsection.

a. The applicant shall also submit along with the application, the following:

(1) Legal description of the property.

(2) A survey and metes and bounds description of the property, sealed by a registered public surveyor licensed in the State of Texas.

(3) A digital copy of a general development plan drawn at a scale of at least 1″ = 50′ showing:

(a) The boundaries of the property.

(b) Location of existing buildings and structures.

(c) General arrangement of existing and proposed land uses, including any zoning proposed, and including but not limited to, parks, schools, public facilities and civic places sites; open space, trails, streets, bikeways, major drainage ways and transit corridors.

(d) The proposed density expressed in units per acre and population by land use projected for the next ten years.

(e) Layout and relationship of the proposed development to surrounding land uses, including zoning.

(f) Other submittal requirements as specified in state law and municipal ordinances or regulations.

(4) A certification from a title company authorized to do business in the State of Texas that the applicant is the owner of the property.

(5) Application fee as adopted by city council. Annexations as a result of a petition shall also be required to file a processing fee.

b. The planning and inspections department shall review the application and determine whether the application is complete. If the application is not complete, the application will be returned to the applicant with a statement of what information is missing.

2. Annexation policy. The completed application shall be reviewed to determine whether the proposed annexation complies with the requirements of the City's annexation policy. If the pro-

posed annexation complies with the annexation policy, then the application shall be processed in accordance with the provisions of Chapter 43 of the Local Government Code. If the proposed annexation does not comply the with annexation policy, then the applicant shall be advised of the reasons why and the application process shall end. An applicant may appeal to the city council a determination that an application does not comply with the annexation policy. If an applicant wishes to appeal a determination that the application does not meet the requirements of the annexation policy, then the applicant shall submit to the director of the planning and inspections department a notice of appeal. Upon receipt of notice of appeal and as soon as possible under the circumstances, the director of the planning and inspections department shall place the appeal on the city council agenda. City council shall review the proposed annexation to determine whether it is in compliance with the policy, or if there are extraordinary circumstances which merit that the property be annexed. If city council determines that the property should be annexed, then the director for the planning and inspections department shall continue with processing the application in accordance to state law.

3. Service agreement. Each annexation shall include a service agreement which shall establish the terms and conditions under which the land shall be annexed into the city. The service agreement will include a service plan in accordance with Chapter 43 of the Local Government Code. Once the terms and conditions of the service agreement have been determined, the service agreement shall be forwarded to city council for approval. If approved, the service agreement shall be attached to the ordinance annexing the area. Upon city council approval of the service agreement, city council shall direct the deputy director for the planning and inspections department to prepare an ordinance annexing the area in accordance with Chapter 43 of the Texas Local Government Code.

4. Public hearings. All public hearings shall be conducted in accordance with the procedures of Chapter 43 of the Texas Local Government Code, or any successor statute. The proposed service agreement prepared by the director for the planning and inspections department must be made available for public inspection and explained to the inhabitants of the area at the public hearing. The plan may be amended through negotiation at the hearing, but the provision of any service may not be deleted.

5. Procedures after annexation. If city council approves the annexation ordinance, the director of the planning and inspections department shall prepare for the mayor's signature a letter, including as attachments certified copies of documents showing the change in boundaries of the city in addition to the change in boundaries to the city's ETJ, which shall be sent to the county clerk within thirty days of annexation.

6. The city clerk shall send certified copies of the annexation ordinance to the Texas Comptroller of Public Accounts, Sales Tax Division notifying the comptroller of the change in city boundaries. The director of the planning and inspections department shall send certified letters notifying the entities listed here of the change in city boundaries:

a. United States Bureau of the Census, Boundary and Annexation Survey.

b. Texas Department of Transportation, Planning and Program Division.

c. Texas Commission on Fire Protection.

d. Texas Department of Insurance.

e. El Paso County Tax Assessor.

f. El Paso County Commission.

g. El Paso Central Appraisal District.

h. Any effected school district, as described in Section 43.905, Effect of Annexation on Operation of School District, of the Local Government Code.

i. Any other effected public entity, as defined in Section 43.9051, Notification of Public Entities, of the Local Government Code.

(Ord. No. 18972, § 1, 9-3-2019)

Editor's note—Ord. No. 18972, § 1, adopted Sept. 3, 2019, repealed the former § 20.06.075, and enacted a new § 20.06.075 as set out herein. The former § 20.06.075 pertained to similar subject matter and derived from Ord. No. 17195, § 1, adopted Sept. 15, 2009.

20.06.080 Compliance with district standards and use regulations.

All property within the corporate limits shall be located within one of the zoning districts described herein, and shall meet and conform to all requirements of those districts and shall meet any applicable performance standards (supplemental use regulations) set forth in this title. These performance standards shall apply whether or not a reference to such standards is identified in the Table of Permissible Uses under Chapter 20.08 (Permissible Uses) of this title. Except where indicated otherwise, the uses permitted in each zoning district shall be limited to those specifically enumerated. Unless the contrary is clear from the context of the lists or other regulations of this title, uses not specifically listed are prohibited. (Ord. 16653 § 2 (part), 2007)

Chapter 20.08

PERMISSIBLE USES

Sections:

20.08.010 Uses permitted by district.

20.08.020 Interpretative provisions.

20.08.030 Permissible uses.

20.08.040 Classification of new or unlisted uses.

20.08.050 Change in use.

20.08.060 Combination uses.

20.08.010 Uses permitted by district.

No land shall hereafter be used, and no building or structure shall hereafter be erected, altered, or converted, which is arranged or designed or used for other than those uses specified as permitted uses in the zoning district in which it is located, according to the Table of Permissible Uses found in Appendix A, as adopted in its entirety, incorporated herein by reference, and in accordance with the provisions of this title.
(Ord. 16653 § 2 (part), 2007; Ord. No. 19244, § 10, 10-12-2021)

20.08.020 Interpretative provisions.

A. When used in connection with a particular use in the Table of Permissible Uses, the designations shall have the following connotations.

1. Permitted Use. A "P" in a cell shall indicate that a use is allowed by right in the respective zoning district, and shall be subject to the general restrictions and performance standards found in Chapter 20.10 (Supplemental Use Regulations) and other applicable regulations of this title.

2. Accessory Use. An "A" in a cell shall indicate that a use is allowed by right when it is incidental to a permitted use in the respective zoning district, and shall be subject to the general restrictions and performance standards found in Chapter 20.10 (Supplemental Use Regulations) and other applicable regulations of this title.

3. Special Permit Use. An "S" in a cell shall indicate that a use is only allowed by special permit with a detailed site development plan approval in the respective zoning district obtained from the city council in accordance with Chapter 20.04 (Administrative Provisions), and shall be subject to the general restrictions and performance standards found in Chapter 20.10 (Supplemental Use Regulations) and other applicable regulations of this title.

4. Restricted Use. A "D" in a cell shall indicate that a use is allowed in a special purpose district, excluding the R-F Ranch and Farm District, following detailed site development plan approval in accordance with Chapter 20.04 (Administrative Provisions), and shall be subject to the general restrictions and performance standards found in Chapter 20.10 (Supplemental Use Regulations) and other applicable regulations in this title.

5. Mixed Use. A "Z" in a cell shall indicate that a use is allowed in a mixed use district (RMU, GMU, or IMU) as authorized by the City Council with specific use limitations and development standards, following approval of a master zoning plan in accordance with Chapter 20.04 (Administrative Provisions), and shall be subject to the general restrictions and performance standards found in Chapter 20.10 (Supplemental Use Regulations) and other applicable regulations of this title.

6. Special Exception Use. An "E" in a cell shall indicate that a use is only allowed by special exception in the respective zoning district obtained from the Zoning Board of Adjustment in accordance with Chapter 20.04 (Administrative Provisions), and shall be subject to the general restrictions and performance standards found in Chapter 20.10 (Supplemental Use Regulations) and other applicable regulations of this title.

7. Uses Not Allowed. An "X" in a cell shall indicate that a use is not allowed in the respective zoning district.

8. Supplemental Use Regulations. The reference to a supplemental standard in any cell shall mean that the use in a respective zoning district is subject to additional standards and requirements found in Chapter 20.10 (Supplemental Use Regu-

lations) of this title. The specific section number of the standard shall be noted in the column titled "Supplemental Standards." Provided, however, that any applicable performance or supplemental standard within Chapter 20.10 (Supplemental Use Regulations) of this title applying to a use shall be required whether or not references incorrectly or omitted from the Table of Permissible Uses.

B. A use that may be interpreted to be permitted under more than one categorical or use description in the Table of Permissible Uses shall be required to satisfy the requirements of the most restrictive zoning district in which the use is allowed.

C. A use particularly identified, whether or not the use may be interpreted to be permitted under more than one categorical or use description in the Table of Permissible Uses due to function or type, shall satisfy the requirements of the zoning district in which the use is particularly identified.

(Ord. 16653 § 2 (part), 2007; Ord. No. 19244, § 11, 10-12-2021)

20.08.030 Permissible uses.

A. The zoning districts described in this chapter group together those uses that are reasonably compatible with one another according to their normal characteristics of operation in order to achieve the following:

1. To permit, in connection with these uses, those customary and necessary accessory activities that are incidental to the principal use;

2. To permit certain other uses that may be established in some situations and subject to specific conditions so that such special uses will also be compatible with the uses allowed;

3. To promote orderly, timely, economical growth and to recognize current land use conditions;

4. To provide sufficient space in appropriate locations for development to meet the present and future growth needs of the city, with allowance for diversity of sites;

5. To protect use areas, as far as possible, against heavy and unnecessary through traffic;

6. To protect use areas against pollution, environmental hazards and other objectionable influences;

7. To protect use areas against congestion, as far as possible, by managing the density of population in and around them;

8. To provide for privacy and access of light and air, as far as possible, through controls over the spacing and height of buildings and other structures;

9. To promote the most appropriate use of land to achieve stability of development, to protect the character of the districts, to conserve the value of land and buildings, and to protect the tax base;

10. To promote the most efficient use of public facilities and services;

11. To protect against fire and explosions and other safety hazards;

12. To provide for fire and other emergency access;

13. To accommodate use activities and operations whose external physical effects are restricted to the area of the zoning district, and in no manner affect in a detrimental way any of the surrounding zoning districts.

B. The Table of Permissible Uses shall be used in conjunction with the terms and definitions as set forth in Chapter 20.02 (General Provisions and Definitions) of this title. The uses are assigned different categorical descriptions in the table for illustrative purposes only, as shown below.

1.0	Agricultural and related operations
2.0	Commercial, storage and processing
3.0	Educational, institutional and social uses
4.0	Office and research services
5.0	Manufacturing, processing and assembling
6.0	Medical and related uses
7.0	Mining and quarrying operations

8.0	Motor vehicle sale and service operations
9.0	Parking and loading
10.0	Personal services
11.0	Recreation, amusement and entertainment
12.0	Repair services
13.0	Residential
14.0	Sales, retail and wholesale
15.0	Signs
16.0	Temporary uses
17.0	Towers and related structures
18.0	Transportation related uses
19.0	Utility and miscellaneous governmental uses
20.0	Overlay designations

C. Table of Permissible Uses. Appendix A. (Ord. 16761 § 1 (part), 2007; Ord. 16653 § 2 (part), 2007)
(Ord. No. 18134, § 2, 3-4-2014; Ord. No. 18218, § 2, 7-29-2014; Ord. No. 18241, § 2, 9-9-2014)

20.08.040 Classification of new or unlisted uses.

It is recognized that new types of land use will develop and forms of land use not listed in any respective zoning district within the Table of Permissible Uses (Appendix A) may seek to locate and operate in the city. In order to provide for such changes and contingencies, a determination as to the appropriate classification of any new or unlisted form of land use shall be made as follows:

A. The zoning administrator shall upon a written request for interpretation of any interested party and pursuant to the procedures set forth in Chapter 20.04 (Administrative Review Procedures), make a determination within which zoning district the new or unlisted use should be allowed. Any request for an interpretation shall be accompanied by a fee in the amount paid for a zoning determination, and shall include a written statement of facts listing the nature of the use and whether it involves dwelling activity, sales, processing, type of product, storage, and amount or nature thereof, enclosed or open storage, anticipated employment, transportation requirements, the amount of noise, odor, fumes, toxic material and vibration likely to be generated and the general requirements for public utilities such as water and sanitary sewer.

B. The zoning administrator shall review the request determine if the new or unlisted use is sufficiently similar to a use already allowed within the Table of Permissible Uses and shall determine within which zoning district the new or unlisted use should be allowed. A new or unlisted use shall be classified with other similar listed uses and shall be permitted in the same zoning district(s). The nature of the new or unlisted use and its compatibility with the uses permitted in the various zoning districts shall be considered with many factors in determining the zoning district or districts within which such new or unlisted use shall be permitted.

C. If the zoning administrator determines that the new or unlisted use is not similar to any use allowed within the Table of Permissible Uses, or the requestor does not agree with the determination of the zoning administrator, then the initial request and the zoning administrator's determination shall be forwarded to the city plan commission requesting an interpretation as to the zoning classification into which such use should be placed.

D. The city plan commission shall consider the nature and described performance of the proposed use and compatibility with the uses permitted in the various districts and after public hearing determine the zoning district or districts within which such use should be permitted.

E. The city plan commission shall transmit its findings and recommendations to the city council as to the classification proposed for any new or unlisted use. The city council may approve the recommendation of the city plan commission or make such determination concerning the classification of such use as is determined appropriate after giving consideration to the facts and recommendations; and shall direct that an ordinance be drafted to amend the zoning code in order to allow

such use. (Ord. 16653 § 2 (part), 2007)

20.08.050 Change in use.

A change in use occurs whenever the essential character or nature of the activity conducted on a property, or portion thereof, substantially changes from one principal use category to another, requiring that new permits be obtained pursuant to Chapter 20.04 (Administrative Provision) of this title. For purposes of this section, substantial change occurs when the relative proportion of space devoted to the principal use changes to such an extent that the parking requirement for the use is altered or when the type of individual principal use or combination of uses changes. A change in the status of the property from unoccupied to occupied or vice versa, or a change in ownership or business name, shall not be regarded as a change in use. (Ord. 16653 § 2 (part), 2007)

20.08.060 Combination uses.

When a property comprises two or more principal uses that require different types of permits, then the permit authorizing the combination use shall be:

A. A special permit if any of the principal uses combined is permitted only as a special permit use;

B. A detailed site development plan approval if any of the principal uses combined is permitted only following a detailed site development plan approval; or

C. A building permit in all other cases.

(Ord. 16653 § 2 (part), 2007; Ord. No. 19244, § 12, 10-12-2021)

Chapter 20.10

SUPPLEMENTAL USE REGULATIONS

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20.10.390 Reserved.

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20.10.660 Temporary buildings or structures (incidental to sales or rental).
20.10.670 Temporary sales stands.
20.10.680 Temporary uses.
20.10.690 Tennis clubs.
20.10.695 Transfer of development rights.
20.10.700 TV and radio broadcasting antennae.
20.10.710 TV and radio receiving antennae.
20.10.720 Unenclosed parking space shelters.
20.10.730 Utility facilities.
20.10.740 Vehicles.
20.10.750 Yard, garage or rummage sales.

20.10.010 General restrictions.

A. Conformance with Regulations. Any use hereafter placed on land and any building or part thereof hereafter erected, altered, expanded, placed, converted, or otherwise located in the city shall comply with the requirements set forth in this title and otherwise as required by this City Code.

B. Lot Required. Every building hereafter erected, altered, expanded, placed, converted, or otherwise located shall be on a lot or lots, and in no case shall there be more than one main building on one lot unless otherwise provided in this title. Where more than one building is allowed for a principal use within a zoning district, all buildings shall be subject to the provisions of this title. All buildings shall be so located on a lot or lots as to provide for safe and convenient vehicular access.

C. Legal Access Required. No lot or portion thereof shall be used or occupied unless such lot has frontage upon an accessway, except for agricultural uses associated with the conduct of a farm or ranch.

D. Reference to Other Legislation.

1. Any condominium project and any declaration or restriction to be filed in connection therewith shall comply in all respects with the provisions of the Texas Condominium Act and with the requirements of the ordinance codified herein to the extent not in direct conflict.

2. No building or land shall hereafter be used and no building or part thereof shall be erected, altered, expanded, placed, converted, or otherwise located on a lot or lots unless in conformity with the regulations of this Code and any applicable state or federal regulations. (Ord. 16653 § 2 (part), 2007)

20.10.020 General performance standards.

The general performance standards set forth below are intended to reduce the impacts that development may have on adjacent properties. Satisfactory compliance with the performance stan-

dards shall be required to be demonstrated for a particular use at the time of issuance of a building permit or certificate of occupancy, and continued compliance with the performance standards shall be enforced by the city against any use if there are reasonable grounds to believe that the performance standards are being violated by such use. The determination of the existence of any dangerous and objectionable elements shall be made at the location of the use creating the same and at any point where the existence of such elements may be more apparent.

A. Noise. No use permissible in any zoning district may generate noise that tends to have an annoying or disruptive effect upon uses located outside the immediate space occupied by the use if that use is one of several located on a lot, or uses located on adjacent lots. The maximum permissible noise levels are set forth in Chapter 9.40 (Noise) of this Code. Maximum permissible noise levels shall vary according to the use and zoning of the lot(s). Decibel level measurements shall be taken at the boundary line of the lot where the use is located.

B. Vibration. No use permissible in any zoning district may generate any ground-transmitted vibration that is perceptible to the human sense of touch measured at the outside boundary of the immediate space occupied by the use generating the vibration if the use is one of several located on a lot, or the lot line if the use generating the vibration is the only use located on a lot. Ground-transmitted vibration shall not be permitted in excess of the maximum limits set forth in Chapter 9.16 (Nuisances) of this Code. Vibration shall be measured at any adjacent lot line with suitable instrumentation or computed on the basis of displacement and frequency.

C. Odors. No use permissible in any zoning district may generate any odor that reaches the odor threshold measured at the outside boundary of the immediate space occupied by the use generating the odor, or the lot line if the use generating the odor is the only use located on a lot. For purposes of this section, the odor threshold shall be defined as the minimum concentration in air of a gas, vapor, or particulate matter that can be detected by the olfactory system as set forth in Chapter 9.16 (Nuisances) of this Code.

D. Air Pollution. Any use permissible in any zoning district that emits any air contaminant shall comply with applicable standards of Chapter 9.36 (Air Pollution) of this Code, 30 TAC (Texas Administrative Code), and any state or federal standards concerning air pollution. No permit may be issued for a use emitting an "air contaminant" until the state or federal agency with jurisdiction has certified to the city that the appropriate permits have been received or that the development is otherwise in compliance with applicable laws.

E. Disposal of Liquid Wastes. No use permissible in any zoning district may:

1. Discharge any waste contrary to the provisions of Title 19 (Subdivisions) of this Code, and any state or federal law governing discharges of radiological, chemical, or biological wastes into surface or subsurface waters; or

2. Discharge into the city sewage treatment facilities any waste that cannot be adequately treated by biological means, or without the permission of the El Paso Water Utility.

F. Electrical Disturbance or Interference. No use permissible in any zoning district may:

1. Create any electrical disturbance that adversely affects any operations or equipment other than those of the creator of such disturbance; or

2. Otherwise cause, create, or contribute to the interference with electronic signals (including, but not limited to, television, telephone and radio broadcasting transmissions) to the extent that the operation of any equipment not owned by the creator of such disturbance is adversely affected.

G. Fire and Explosion Hazards. All activities involving and all storage of flammable and explosive materials shall ensure there are adequate safety devices against the hazard of fire and explosion, and adequate firefighting and fire suppression equipment and devices standard in the industry

pursuant to applicable sections of Chapter 9.52 (Fire Prevention Code) of this Code, and any relevant state or federal standards.

H. Glare. No direct or sky-reflected glare from high-temperature processes, such as but not limited to combustion, welding or otherwise, so as to be visible at the property line shall be permitted.

I. Lighting. All entrances, exits, parking lots, and other common areas and facilities within a lot shall be sufficiently illuminated to ensure the security of property and the safety of persons using such areas and facilities, provided, however, that lighting within a lot shall be adequately shielded or directed so that illumination is provided in a manner that would not substantially interfere with the use or enjoyment of neighboring properties, and is in compliance with Title 18. (Ord. 16653 § 2 (part), 2007)

20.10.030 Accessory buildings and structures.

A. Residential.

1. Residential accessory buildings shall not exceed one story or fifteen feet in height and must be located in a rear yard, or in a side yard if minimum required side setbacks are maintained, except as permitted in Section 20.10.035 (Accessory Dwelling Units). Condensing units for central air conditioning systems shall be no closer than five feet to a lot line.

2. Any residential accessory building closer than five feet to a main building shall be considered as part of the main building, shall be located within the buildable area required for a main building, and shall be subject to all applicable restrictions for the main building.

3. Detached residential accessory buildings shall be located not less than sixty feet from the front lot line, a minimum of five feet from the main building, and shall comply with the side and side street yard requirements. No rear yard setback shall be required, except for accessory dwelling units as permitted in Section 20.10.035.

4. The gross floor area of all combined detached residential accessory buildings on a lot shall not exceed the more restrictive of the following, except that one building with up to four hundred square feet shall be permitted:

a. Fifty percent of the gross floor area of the main building; or

b. Forty percent of the area of the rear yard.

5. A residential private garage or other accessory building may be connected to the main building by a breezeway or connected by a fence or wall up to six feet in height, provided that the breezeway shall not exceed an overall width of five feet and shall be a minimum of seventy-five percent open to the outside on both sides.

6. Residential accessory buildings shall be built concurrently with or after the construction of the main building and shall be used only as permitted by this Code.

7. Where a residential garage entrance is from an alley, the structure must be located at least five feet from the property line.

8. In residential, apartment and special districts where community refuse containers are provided, these shall be completely screened from view by fences or walls and have a gate which can be latched open.

B. Ranch and Farm District.

1. A maximum of two single-family dwelling units shall be permitted for farm and ranch properties of not less than six acres nor more than twenty-five acres, without regard to street frontage, provided both dwelling units shall be for year-round farm and ranch operators, or farm and ranch workers and their families.

2. One additional dwelling unit for additional farm and ranch workers and their families shall be permitted for each additional twenty-five acres.

C. Placement of Portable Storage Containers.

1. On any lot located in zoning district C2, C3, C4, M1, M2, M3, PI, GMU or IMU one or more portable storage containers may be permitted as accessory storage to the principal use(s) provided the following conditions are met:

2. The floor area contained in the portable storage container shall be limited to no more than

ten percent of the floor area of the principal use except that for principal buildings less than one thousand six hundred (1,600) square feet in size, the container may be up to one hundred sixty square feet in size. In buildings with multiple tenants, no single user shall be permitted more than ten percent of the floor area of its use.

3. Portable storage containers shall be located at least five feet behind the front wall line of the principal building.

4. Portable storage containers shall be required to meet side and rear setback requirements for buildings and shall be located at least twenty feet from any abutting apartment or residential zoning district.

5. Signage on portable storage containers shall be limited to one sign per container, not exceeding two square feet. The signage shall not be visible from any abutting street or any adjacent property in an apartment or residential zoning district.

6. Vertical stacking of portable storage container and stacking of any other materials or merchandise on top of any portable storage container shall be prohibited. No running gear shall be left underneath any portable storage container.

7. No portable storage container shall be placed or located on a required parking space, circulation aisle/lane, fire access lane, required landscape area, required open space, retention or detention basins, loading zone, or any other location that may cause hazardous conditions or constitute a threat to public safety.

8. A building permit shall be required for the installation of portable storage containers and the design and installation of any such portable storage containers shall comply with Title 18.

9. Exceptions:

a. Portable storage containers temporarily placed on lots during a period of ongoing permitted construction on the same lots are exempt from the above requirements.

b. The temporary placement of a portable storage container on a lot for the purpose of loading and unloading household contents shall be permitted for a period of time not exceeding seven days in a calendar year. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17532, §§ 2—4, 4-19-2011)

20.10.035 Accessory dwelling unit (ADU).

A. In addition to the regulations in Section 20.10.030, detached accessory dwelling units in residential zoning districts shall comply with the following:

1. The property owner must occupy either the principal unit or the accessory dwelling unit as their permanent residence. An owner of a property containing an accessory dwelling unit who is absent for a period of one year or less may rent the owner's unit as well as the second unit during the temporary absence.

2. Only one ADU is permitted on a lot with a detached single-family dwelling. ADUs are not permitted on lots with a duplex or multi-family units.

3. The minimum lot area is five thousand five hundred square feet.

4. If the lot is designated for on-site ponding, the maximum lot coverage, including all buildings and impervious surfaces, is fifty percent.

5. The ADU shall not exceed eight hundred square feet of gross floor area, except that for lots containing eight thousand square feet or more, the ADU shall not exceed one thousand two hundred square feet gfa.

6. The ADU shall not contain more than one bedroom.

7. The ADU shall comply with all building code requirements for a dwelling unit, including but not limited to, heating and cooling, cooking and bathroom facilities.

8. The ADU shall be located a minimum of ten feet from any property line, except that when the rear property line abuts an alley with a minimum ROW of twenty feet, the rear setback for an ADU may be reduced to zero feet; and when the rear property line abuts an alley with ROW less than twenty feet, the rear setback for an ADU may be reduced to five feet, or less if approved by the traffic engineer.

9. Vehicular access to the ADU is permitted from an abutting alley if on-site parking is provided for the ADU.

10. The height of the ADU shall not exceed the height of the principal unit.

11. Windows shall not be permitted on the wall of an ADU that is within ten feet of the property line abutting a residential use, if the ADU is taller than one story or fifteen feet, unless a minimum fifteen feet buffer of privacy trees (see approved tree list) are planted at fifteen feet on center along the side and/or rear property lines adjacent to the ADU.

12. ADUs shall resemble the principal unit in scale and character.

13. Windows shall be similar to the principal unit in the following ways: Type of window, trim style, proportions.

B. Attached accessory dwelling units are permitted when they comply with the following:

1. Only one ADU is permitted on a lot with a single-family dwelling. ADUs are not permitted on lots with a duplex or multi-family units.

2. The minimum lot area is five thousand five hundred square feet.

3. The ADU shall not exceed eight hundred square feet of gross floor area except that for lots containing eight thousand square feet or more, the ADU shall not exceed one thousand two hundred square feet gfa.

4. The ADU shall not contain more than one bedroom.

5. The ADU shall comply with all building code requirements for a dwelling unit, including but not limited to, heating and cooling, cooking and bathroom facilities.

6. The ADU shall comply with all yard standards of the zoning district.

7. A separate entrance shall be provided for the ADU.

8. Vehicular access to the ADU is permitted from an abutting alley if on-site parking is provided for the ADU.

9. The height of the ADU shall not exceed the height of the principal unit.

10. ADUs shall resemble the principal unit in scale, material and color. Roof pitch, siding material and color shall match the principal unit.

11. Windows shall be similar to the principal unit in the following ways: type of window, trim style, proportions.

(Ord. No. 17532, § 5, 4-19-2011; Ord. No. 18973, § 1, 9-3-2019)

20.10.040 Accessory uses, medical.

Permitted accessory uses for hospitals, medical and dental offices may include florist shops, gift shops and pharmacies, with the following restrictions:

A. No display of goods or merchandise shall be visible from any public street;

B. No sign advertising the accessory use or service shall be visible from any public street; and

C. All access to the accessory use or service shall be from within a completely enclosed building and no outside entrance shall be visible from any public street. (Ord. 16653 § 2 (part), 2007)

20.10.050 Accessory uses, residential development.

The following are permitted accessory uses in attached single-family developments or multifamily developments:

A. An office located in a main building for administration of a development containing ten or more dwelling units;

B. A laundry room for use of occupants of a development;

C. A sauna, exercise room, clubhouse or similar facility for use of occupants of a development;

D. Vending machines for candy, ice, soft drinks and sundries, located inside a building. (Ord. 16653 § 2 (part), 2007)

20.10.055 Adaptive reuse overlay.

A. Purpose. The purpose of an adaptive reuse overlay (ARO) is to revitalize neighborhoods and increase new housing opportunities within the

El Paso Downtown 2015 Plan area by allowing more flexible development standards for certain residential and/or mixed uses within the area.

B. Applicability. An adaptive reuse overlay (ARO) may be placed on property located in El Paso Downtown 2015 Plan area and can only be used for the conversion of all or any portion of an existing building to any of the following new residential and/or mixed uses:

1. Dwelling units (single family, duplex, triplex, quadraplex, townhomes, apartments, condominiums).

2. Single room occupancy (SRO).

3. Live-work units.

4. Mixed-use buildings.

5. Other uses permitted in the underlying zoning district.

C. Designation. An application for an ARO designation may be initiated either by city council, a property owner or group of property owners.

D. Application. An application for an ARO designation shall be subject to the notice and public hearing requirements and procedures of Chapter 20.04, and shall also be accompanied with all of the following:

1. A list of all the properties and property owners in the area described in the application; and

2. A map of the area.

E. Development standards.

1. The ARO standards are optional and provide for greater density and flexible standards. A property owner within the ARO may use the standards identified in this section or may use the underlying zoning district standards for their property. All of the permitted uses in the underlying zoning district are permitted in the ARO. Additionally, within the ARO, a property owner may convert all or any portion of an existing building to any of the uses in Section 20.10.455 B.

2. The following modified development standards apply for adaptive reuse projects in the El Paso Downtown 2015 Plan area for properties zoned UP, C-5, C-4, C-1, S-D, SRR, and M-1:

a. Minimum front, rear and side setbacks: Zero feet.

b. Maximum height: Five stories or as permitted in the underlying zoning district.

c. Minimum lot area, width, and depth: None.

d. Minimum square footage for multi-family dwelling units: Four hundred fifty; except that the total units within a development shall have a minimum average square footage of six hundred fifty.

e. Adaptive reuse projects are exempt from detailed site development plan requirements in Title 20.

f. Adaptive reuse projects are exempt from landscape requirements in Title 18, except that where there is minimum of ten feet of existing parkway (including sidewalk), street trees shall be provided in accordance with Article IV — Street Trees, of Section 18.46.

g. Unless specifically modified in Subsection E. above, all other dimensional and density standards and parking standards of the underlying zoning district standards in Title 20 shall apply to any property with an ARO overlay.

h. All properties within an ARO will carry the suffix "ARO," indicating that such property may be developed under the land use and design standards of the ARO.

(Ord. No. 17754, § 2, 3-20-2012)

20.10.060 Alcoholic beverages.

A. Requirements. The sale, storage, or handling of alcoholic beverages for the purpose of sale is permitted only where the use is authorized by and complies with all applicable provisions of this title and the Texas Alcoholic Beverage Code.

1. The sale, storage or handling of alcoholic beverages for the purpose of sale is permitted only where licensed in accordance with Chapter 5.08 of the city code and the Texas Alcoholic Beverage Code.

2. The sale, storage or handling of alcoholic beverages for the purpose of sale is permitted only in approved locations within the interior of buildings or structures that have a valid certificate of occupancy allowing such use.

3. The sale, storage or handling of alcoholic beverages for the purpose of sale is permitted in specific uses in the following zoning districts, subject to the requirements of this chapter:

a. C-1, C-2, C-3, C-4, and C-5 commercial districts;

b. P-C planned commercial district;

c. GMU general mixed use district;

d. S-D special development district;

e. U-P union plaza district;

f. M-1, M-2 and M-3 manufacturing districts;

g. IMU industrial mixed use district.

4. The sale, storage or handling of alcoholic beverages for the purpose of sale is permitted as an accessory use to specific permitted uses in the following zoning districts, subject to the requirements of this chapter:

a. R-F ranch and farm district;

b. R-1, R-2, R-2A, R-3, R-3A, R-4 and R-5 residential districts;

c. PMD planned mountain development district;

d. A-1, A-2, A-3 and A-4 apartment districts;

e. A-O and A-3/O apartment/office districts;

f. COP commercial office park district;

g. A-M apartment and manufactured home park district;

h. RMU residential mixed use district;

i. PR-1 and PR-II planned residential districts.

j. NOS natural open space district.

5. The sale, storage or handling of alcoholic beverages for the purpose of sale is permitted as an accessory use to specific uses allowed by special permit in the following zoning districts, subject to the requirements of this chapter:

a. PMD planned mountain development district;

b. A-1, A-2, A-3 and A-4 apartment districts;

c. A-O and A-3/O apartment/office districts;

d. A-M apartment and manufactured home park district.

B. Restrictions.

1. The sale, storage or handling of alcoholic beverages for the purpose of sale is not permitted in any zoning district where the place of business is located within three hundred feet of a church, public or private school, or public hospital; however, this section shall not apply where the applicant has approval from the affected church, public or private school, or public hospital in writing.

2. The sale, storage or handling of alcoholic beverages for the purpose of sale is not permitted in any zoning district where the place of business is located within three hundred feet of a day-care center or a child-care facility as defined in the Texas Human Resources Code § 42.002 and the permit or license holder does not hold a food and beverage certificate issued by the Texas Alcoholic Beverage Commission, unless expressly varied pursuant to the requirements of this section, except that this provision shall not apply:

a. If the permit or license holder and the day-care center or child-care facility are located on different stories of a multistory building; or

b. If the permit or license holder and the day-care center or child-care facility are located in separate buildings and either the permit or license holder or the day-care center or child-care facility is located on the second story or higher of a multistory building; or

c. Neither section a. or b. within this subsection, is applicable if the applicant has approval from the affected day-care center or child-care facility in writing.

3. The distance between the place of business where alcoholic beverages are sold and a church or public hospital shall be measured along the property lines of the street fronts and from front door to front door, and in direct line across intersections.

4. The distance between the place of business where alcoholic beverages are sold and a school, day-care center or child-care facility shall be measured in direct line from the property line of the school, day-care center or child-care facility to the property line of the place of business, and in a direct line across intersections.

5. The prohibition of the sale of alcoholic beverages within three hundred feet of a church, school or public hospital shall not apply to the sale of alcoholic beverages by any business that held a valid license on August 31, 1983, and has remained established and engaged in the sale of alcoholic beverages within three hundred feet of any church, school or public hospital; nor shall the provisions of this section prevent any business legally engaged in the sale of alcoholic beverages on August 31, 1983, and continuing to be so engaged within three hundred feet of any church, school or public hospital from securing a renewal of their license, nor from a new license being issued for such location to any other applicant.

6. The prohibition of the sale of alcoholic beverages within three hundred feet of a commercial day care shall not apply to the sale of alcoholic beverages by any business that held a valid license on June 5, 2007, and has remained established and engaged in the sale of alcoholic beverages within three hundred feet of any commercial day care; nor shall the provisions of this section prevent any business legally engaged in the sale of alcoholic beverages on June 5, 2007, and continuing to be so engaged within three hundred feet of any commercial day care from securing a renewal of their license, nor from a new license being issued for such location to any other applicant.

7. The city council may grant an exception from prohibition of the sale of alcoholic beverages within three hundred feet of a church, school, commercial day care or public hospital after notice and public hearing if the council determines that the enforcement of the prohibition in a particular instance:

a. Is not in the best interest of the public;

b. Constitutes waste or the inefficient use of land or other resources;

c. Creates an undue hardship on an applicant;

d. Does not serve its intended purpose;

e. Is not effective or necessary; or

f. For any other reason the city council, after consideration of the health, safety, and welfare of the public and the equities of the situation, determines is in the best interest of the community. (Ord. 16653 § 2 (part), 2007)

(Ord. No. 17306, § 4, 4-6-2010; Ord. No. 18458, §§ 1, 2, 1-12-2016)

20.10.070 Amateur and CB radios.

Federally licensed amateur and CB radio stations must comply with FCC regulations. Installation of radio towers and masts shall comply with the building code requirements of the city. (Ord. 16653 § 2 (part), 2007)

20.10.080 Animal facilities (animal kennel, animal training facility, veterinary treatment center, clinic or hospital).

A. Kennels and animal training establishments are permitted when in compliance with Title 7 of this Code and the following conditions:

1. In the Ranch-Farm zoning district, provided,

a. The site has a minimum of six acres, and

b. Any building relating to this use is not closer than three hundred feet from the nearest residential or apartment district or use;

2. In C-2, C-3, C-4 and M-1 zoning districts:

a. All animals are housed inside a permitted structure,

b. No open pens are provided or used,

c. No building, structure or open area (except space for parking of employee and customer automobiles) shall be used for this use unless it is at least three hundred feet from the nearest residential or apartment district or use,

d. A means of mechanical air exchange is provided for all permitted structures, and

e. No outside runs are permitted.

B. Small animal veterinary hospitals or clinics are permitted when in compliance with Title 7 of this Code and the following conditions:

1. In the R-1 and C-1 zoning districts (with a special permit approved by city council):

a. All animals are housed inside a permitted structure that is completely enclosed and soundproof,

b. No open pens are provided or used,

c. The distance between a building, structure or open area (except for parking of employee and customer automobiles) used for any hospital or clinic purpose to the property line of any residential or apartment use existing at the time the hospital or clinic is established shall not be less than one hundred fifty feet. This restriction does not apply to a residential structure located on the same site and used as a part of the hospital or clinic operation,

d. A means of mechanical air exchange is provided for all permitted structures, and

e. No outside runs are permitted;

2. In C-2, C-3, C-4 and M-1 zoning districts:

a. All animals are housed inside a permitted structure,

b. No open pens are provided or used,

c. No building, structure or open area (except space for parking of employee and customer automobiles) shall be used for any hospital or clinic purpose unless it is at least one hundred fifty feet from the property line of any residential or apartment use at the time the hospital or clinic use is established,

d. A means of mechanical air exchange is provided for all permitted hospital or clinic structures, and

e. No outside runs are permitted.

C. Small or large animal veterinary hospitals or clinics in the R-F zoning district, and large animal hospitals or clinics in the C-4 and M-1 zoning districts with a special permit approved by city council, must comply with Title 7 of this Code, and the following conditions:

1. Lot area shall be a minimum of one acre with a minimum average lot width of two hundred feet,

2. No building, structure, open pen or corral (except open space for parking of employee and customer automobiles) shall be used for any hospital or clinic purpose unless it is at least one hundred fifty feet from the nearest residential or apartment district or use at the time the hospital or clinic use is established, and

3. A means of mechanical air exchange is provided for all hospital or clinic structures. (Ord. 16653 § 2 (part), 2007)

(Ord. No. 17325, §§ 1, 2, 5-25-2010; Ord. No. 17792, § 1, 5-29-2012)

20.10.090 Automotive uses.

A. Motor Vehicle Repair, Minor. When located in S-D, C-1, C-2 and P-C zoning districts, facilities are subject to the following standards:

1. The property has frontage on a collector arterial or larger street;

2. A maximum building square footage of four thousand square feet is permitted;

3. A minimum twenty-five foot setback is required from any abutting residential or apartment use or district;

4. All services must be performed within an enclosed building;

5. No service bay doors may open facing a residential use or district;

6. No overnight outside storage of inoperative vehicles is allowed; and

7. No outside display of stock or inventory sold at retail shall be permitted.

B. Motor Vehicle Repair, Major. Facilities shall comply with the following standards:

1. The property has frontage on a collector arterial or larger street;

2. A minimum twenty-five foot setback is required from any abutting residential or apartment use or district;

3. No service bay doors may open facing a residential use or district; and

4. No outside display of stock or inventory sold at retail shall be permitted.

C. Motor Vehicle Storage Yard (accessory use to motor vehicle repair). Facilities shall comply with the following standards:

1. These yards shall be paved and enclosed by a six-foot screening wall except for necessary ingress and egress or where prohibited by this Code, to prevent visibility from adjacent properties or rights-of-way;

2. For the purposes of this use, temporary storage of a vehicle means for a maximum of ten consecutive calendar days;

3. The maximum number of vehicles authorized in temporary storage at any one time shall be the greater of three vehicles per bay or ten vehicles; and

4. A vehicle must be inoperative and waiting for parts, or unsafe to operate, to be temporarily stored in this manner.

D. Rental Satellite Location. In the S-D, C-1, C-2 and P-C zoning districts, a maximum of ten vehicles are permitted. (Ord. 16653 § 2 (part), 2007)

20.10.100. Reserved.

Editor's note—Ord. No. 019734, § 3, 5-28-2025, repealed § 20.10.100, which pertained to bakeries and tortilla factories and derived from Ord. 16653 § 2 (part), adopted 2007.

20.10.110 Banks and financial institutions.

Drive in facilities must have a stacking lane or deceleration lane as approved by the traffic engineer. (Ord. 16653 § 2 (part), 2007)

20.10.115 Boarding home facilities.

All boarding home facilities must be licensed in accordance with the provisions of Title 5 of this Code.
(Ord. No. 17577, § 4, 7-7-2011; Ord. No. 18241, § 3, 9-9-2014)

20.10.120 Carwash facilities.

A forty-foot minimum front yard setback and thirty-foot minimum rear yard setback shall be required, except that the main building shall be a minimum of one hundred feet from any residential or apartment use or district. (Ord. 16653 § 2 (part), 2007)

20.10.140 Child care facilities.

A. Home occupation - child care facilities shall comply with the following:

1. A license shall be maintained at all times as required by law or ordinance;

2. The home child care facility shall be clearly incidental and secondary to the principal use of the property;

3. A caregiver shall be required;

4. The front, side and side street yards shall be maintained as open space and all play activity shall be confined to the rear yard;

5. An indoor area of thirty square feet, excluding single purpose areas as defined in the Texas Human Resources Code, and a rear yard area of eighty square feet shall be provided per child;

6. Permitted signs shall be limited to a one square foot nameplate attached to and not projecting more than one inch beyond the face of the building;

7. The exterior of the building or grounds shall not be altered, decorated or painted in any way to distract from the residential character of the neighborhood;

8. Annual certification shall be required from the fire chief, building official, director of the department of environmental services, and licensing supervisor for the Texas Department of Family and Protective Services that the use and structure comply with the requirements of their respective codes. Provisions of Section 20.10.270 shall also apply to home child care facilities;

9. The play area shall be separated from adjacent properties by a solid masonry wall, not less than four feet high. The solid masonry wall may be along any or all rear lot lines or surrounding the play area, so long as a solid masonry wall exists between the play area and all adjacent property;

10. A minimum of one off-street parking space shall be provided plus one additional off-street parking space for every six children. For this use, the off-street parking requirement shall include garage or carport spaces, and paved driveways which may or may not afford ingress and egress for an automobile. Any passenger loading or unloading at curbside shall be subject to approval by the traffic engineer.

B. Commercial day care centers shall comply with the following:

1. License or registration is maintained at all times when required by law or ordinance;

2. A solid wall, not less than four feet high, is maintained along all interior lot lines with separate play areas for adjacent properties. If the play area abuts open, undeveloped land, a four-foot fence may be substituted, provided that a solid wall is built when the abutting land is developed;

3. The required front yard, and side street yard if one exists, shall be maintained as open space and shall not be used for child care;

4. There shall be at least thirty square feet of indoor activity space for each child in the day care center, measured wall-to-wall on the inside, not including single-use areas;

5. The day care center shall have at least eighty square feet of outdoor play area for each child using the area at one time. All outdoor play areas used by the children shall be accessible by a safe route and enclosed by a building or fence at least four feet high with at least two exits. (Ord. 16817 § 3, 2008; Ord. 16653 § 2 (part), 2007)

20.10.145 Civic buildings, public spaces, and educational facilities.

Any civic building, public space, and/or educational facilities as defined in this title shall conform to, in addition to all other applicable code provisions, the development standards set forth herein.

A. For purposes of this ordinance, a civic building and/or public space shall be categorized and defined as one of the following, which shall be declared by the applicant on the application form for the detailed site development plan:

Neighborhood Facility. A civic building and/or public space designed for and which serves the residents of a neighborhood, which is defined for purposes of this section as an area of one-half square mile. Minimum standards for a neighborhood facility shall include:

Maximum Lot Area:	Fifteen contiguous acres
Location:	Allowed on collectors and residential streets
Front yard setback:	Fifty feet maximum
Frontage Build-out:	Sixty percent of the building façade (including the main entrance) must remain unobstructed.

Community Facility. A civic building and/or public space designed for and which serves the residents of several neighborhood areas, but within the same approximate geographic area, defined for purposes of this section as an area of one square mile.

Maximum Lot Area:	Twenty-five contiguous acres
Location:	Allowed on minor arterials, collectors, and residential streets
Front yard setback:	Eighty feet maximum
Frontage Build-out:	Sixty percent of the building façade (including the main entrance) must remain unobstructed

Regional Facility. A civic building and/or public space designed for and which serves the residents of the entire city, nearby communities, and unincorporated areas.

Maximum Lot Area:	Forty contiguous acres
Location:	Allowed in major and minor arterials
Front setback:	One hundred feet maximum
Frontage Build-out:	Sixty percent the building façade (including the main entrance) must remain unobstructed

B. Minimum Standards for Educational Facilities. For the purpose of this ordinance, an educational facility is defined as a school serving prekindergarten through sixth grade (PK-6th).

Maximum Developed	
Lot Area:	Twenty-five acres
Front yard setback:	One hundred feet maximum
Frontage Build-Out:	Sixty percent of unobstructed building façade to include the main entrance

C. Additional Requirements. The application process for a civic building and/or public space will require a detailed site development plan illustrating integration of the facility within the neighborhood through building design, placement of buildings, pedestrian walkways within the site, landscaping, and parking areas. Administrative review and approval of the detailed site development plan must be completed no more than thirty days after submission of a completed application. An application for a detailed site development plan under this subsection is exempt from Sections 20.04.150 C.1. and 2. Administrative approval and 20.04.150 D. City plan commission approval. If no comments are provided by the city on the detailed site development plan within thirty days of submission, the detailed site development plan, listed in subsection 2(a) through (j) below, may be granted by the city manager or designee. In the event that the city and the applicant cannot agree on the contents of a proposed detailed site development plan, the applicant can appeal to the city plan commission within fifteen business days from the denial of the application. An application for a detailed site development plan must include the following:

1. Proof of outreach and consultation with stakeholders such as residents, parents, facility-end users, elected officials, and neighborhood associations in planning the development of the civic building and/or public space. Examples of outreach and consultation include but are not limited to notice of meetings, flyers of the event, sign-in sheets, and/or newspaper clippings.

2. A detailed site plan must depict the following:

a. Designation of a system of A and B streets serving the facility. An A street is defined as a street that includes a main principle entrance and the architectural and design focal points of the building and/or buildings. Parking is restricted along the A street as outlined in Section 20.10.145 A. Frontage build-out. A B street is defined as a secondary street where the emphasis should be on driveways, drop-off zones, parking lots, and auxiliary entrances.

b. Minimum five-foot sidewalks with minimum five-foot parkway along all street frontages shall be required.

c. In no instance shall parking be placed between the principal entrance and the street. Parking may be placed beyond the sixty percent unobstructed frontage build-out.

d. The number of access points shall not exceed three along any B street and two along any A street.

e. The width of driveway apron shall not exceed twenty-eight feet.

f. The building design may strive to serve as a community landmark. Factors to be considered may include: the principal entrance of the building should serve as a terminating vista and other architectural design elements should be compatible with the surrounding area and/or districts.

g. Plazas, courtyards, and/or other passive open space components may be incorporated within the site.

h. Landscaping shall conform to current city regulations.

i. Civic buildings may be located adjacent to a public park.

j. Principle frontage screening may be constructed and be limited to a four-foot maximum combination masonry material and decorative wrought iron screening fence beyond the unobstructed sixty percent frontage build-out as outlined in Section 20.10.140 C.2.c.

k. Illustrate the quarter-mile pedestrian shed in which at a maximum, the following may be illustrated:

i. For neighborhood facility: Seventy-five percent of surrounding residential land uses should be included within this shed.

ii. For community facility: Fifty percent of surrounding residential land uses should be included within this shed.

iii. For regional facility: Twenty-five percent of surrounding residential land uses should be included within this shed.

3. An intergovernmental agreement for the shared use of facilities is encouraged.

D. Educational Facilities. The application process for an educational facility will require a detailed site development plan illustrating the integration of the facility within the neighborhood through building design, placement of buildings, pedestrian walkways within the site, landscaping, and parking areas. Administrative review and approval of the detailed site development plan must be completed no more than thirty days after submission of a completed application. An application for a detailed site development plan under this subsection is exempt from Sections 20.04.150 C.1. and 2. Administrative approval and 20.04.150 D. City plan commission approval. If no comments are provided by the city on the detailed site development plan within thirty days of submission, the detailed site development plan is deemed approved. Exceptions to the requirements of a detailed site development plan, listed in subsection 2.(a) through (j) below, may be granted by the city manager. In the event that the city and the applicant cannot agree on the contents of a proposed detailed site development plan, the applicant can appeal to the city plan commission within fifteen business days from the denial of the application. An application for a detailed site development plan must include the following:

1. Proof of outreach and consultation with stakeholders such as residents, parents, facility-end users, elected officials, and neighborhood associations in planning the development of the civic building and/or public space. Examples of outreach and consultation include but are not limited to notice of meetings, flyers of the event, sign-in sheets, and/or newspaper clippings.

2. A detailed site development plan must depict the following:

a. Designation of a system of A and B streets serving the facility. An A street is defined as a street that includes a main principle entrance and the architectural and design focal points of the building and/or buildings. Parking is restricted along the A street as outlined in Section 20.10.145 A. Frontage build-out. A B street is defined as a secondary street where the emphasis should be on driveways, drop-off zones, parking lots, and auxiliary entrances.

b. Minimum five-foot sidewalks with minimum five-foot parkway along all street frontages shall be required.

c. In no instance shall parking be placed between the principal entrance and the street. Parking may be placed beyond the sixty percent unobstructed frontage build-out.

d. The number of access points shall not exceed three along any B street and two along any A street.

e. The width of driveway apron shall not exceed twenty-eight feet.

f. The building design may strive to serve as a community landmark. Factors to be considered may include: the principal entrance of the building should serve as a terminating vista and other architectural design elements should be compatible with the surrounding area and/or districts.

g. Plazas, courtyards, and/or other passive open space components may be incorporated within the site.

h. Landscaping shall conform to current city regulations. Exceptions to reduce requirements may be granted as per Section 18.46.90 of the El Paso City Code.

i. When possible, educational facilities may be located adjacent to a public park.

j. Principle frontage screening may be constructed and be limited to a four-foot maximum combination masonry material and decorative wrought iron screening fence beyond the unobstructed sixty percent frontage build-out as outlined in Section 10.20.145 D.2.c.

3. Schools are encouraged to enter into intergovernmental agreements for the shared use of school facilities.

(Ord. No. 18104, § 4, 12-17-2013; Ord. No. 19244, § 13, 10-12-2021)

20.10.146 Civic and cultural district.

A. Regulations should allow for a variety of sign sizes, types, and technologies associated with professional sports, cultural events, festivals, outdoor markets and other entertainment events where large numbers of people congregate, and where street closures may regularly be required. The advertising and messaging allowed within the district should be as varied as the events that take place within it.

B. District boundaries: Beginning at the intersection of the north ROW boundary of West Missouri Avenue and the east ROW boundary of North Oregon Street,

Thence southeast along the east ROW boundary of North Oregon Street to its intersection with the south ROW boundary of West Franklin Avenue,

Thence southwest along the south ROW boundary of West Franklin Avenue to its intersection with the east ROW boundary of North Santa Fe Street,

Thence in a southern direction along the east ROW boundary of North Santa Fe Street to its intersection with the south ROW boundary of West San Antonio Avenue,

Thence southwest along the south ROW boundary of West San Antonio Avenue to its intersection with the west ROW boundary of South Durango Street,

Thence in a northerly direction along the west ROW boundary of South Durango Street to its intersection with the south ROW boundary of West San Francisco Avenue,

Thence in a westerly direction along the south ROW boundary of West San Francisco Avenue to its intersection with the east ROW boundary of South Coldwell Street,

Thence in a south direction along the east ROW boundary of South Coldwell Street to its intersection with the north ROW boundary of West Paisano Drive,

Thence in a northwesterly direction along the north ROW boundary of West Paisano Drive to its intersection with the south ROW boundary of the Union Pacific Railroad Company,

Thence in a southeasterly direction along the south ROW boundary of the Union Pacific Railroad Company to its intersection with the west ROW boundary of South Durango Street,

Thence in a northerly direction along the west ROW boundary of South Durango Street to its intersection with the north ROW boundary of West Missouri Avenue,

Thence northeast along the north ROW boundary of West Missouri Avenue to the point of beginning.

(Ord. No. 18135, § 1, 3-4-2014; Ord. No. 019578, § 3, 12-12-2023)

20.10.150 Reserved.

Editor's note—Ord. No. 18241, § 3, adopted September 9, 2014, repealed § 20.10.150, which pertained to congregate home and derived from Ord. 16817 § 4, 2008; Ord. 16653 § 2 (part), 2007.

20.10.160 Contractor yards.

A. The contractor's business office may be an accessory use to a contractor's yard.

B. Vehicles and equipment used by that contractor may be repaired or maintained in a contractor's yard provided such work is done in an enclosed building or structure.

C. A six-foot high screening wall shall be required at the rear property line and at interior side property lines, and a forty-two inch high screening wall shall be required at the front property line and side street property lines (except where otherwise prohibited by this Code) to minimize visual impacts on adjacent properties and public rights-of-way. (Ord. 16653 § 2 (part), 2007)

20.10.165 Credit access business.

The provisions of this section apply to any property with a use designation of "credit access business" as defined by this Title in Section 20.02.279.

A. No credit access businesses may be located within one thousand feet, measured from property line to property line, of any other credit access business.

B. No credit access businesses may be located within three hundred feet, measured from property line to property line, of a lot in a residential district, SmartCode zone or special control area as defined by Chapter 20.18.250.

C. No credit access business may be located within five hundred feet of an existing freeway or new freeway as defined in Section 20.02.392, measured from the property line of the credit access business to the nearest freeway or new freeway travel lane.

D. A credit access business may only operate within a freestanding building.

E. Credit access businesses are prohibited as accessory uses and may not operate in the same freestanding structure as any other use.

F. In zoning districts where credit access businesses are permitted, a special permit shall be required, subject to the requirements of Chapter 20.04 Article V., Special Permit Approval Process.

G. All credit access businesses shall comply with the provisions set forth in Chapter 5.17 (Credit Access Businesses) of the El Paso City Code. Failure to comply with the provisions of this chapter or those contained within this Title shall subject the property to forfeiture of the special permit, per Chapter 20.04.310, Compliance with Special Permits.

H. Any credit access business not in conformance with the provisions of this Chapter at the time of the effective date of this ordinance shall be deemed nonconforming and subject to the provisions of Chapter 20.22, Nonconforming Situations.

(Ord. No. 18244, § 2, 9-16-2014)

20.10.170 Reserved.

Editor's note—Ord. No. 019734, § 3, 5-28-2025, repealed § 20.10.170, which pertained to custom shops and derived from Ord. 16653 § 2 (part), adopted 2007.

20.10.175 Disabled group dwelling.

A. Occupancy: Not more than six persons with disabilities and two supervisors may reside in a community home at the same time.

B. An on-site resident staff person must be present at all times, whenever any residents of the facility are present.

C. The establishment shall be operated and maintained in the character of a residential dwelling in harmony with and appropriate in appearance to the character of the general vicinity in which it is to be located.

D. Districts Permitted: when located at least 1,000 feet from all other licensed disabled group dwellings and licensed group residential facilities, by right in the following districts: R-1, R-2, R-3, R-4 and R-5, RMH, A-1, A-2, A-3, A-4, A-0 A-3/0, A-M; C-1, C-2, C-3, C-4, C-5; and in special purpose districts R-F; by Detailed Site Plan in the following special purpose districts PMD, S-D, P-R I, P-R II, and SRR; by Master Zoning Plan in special purpose district R-MU. The spacing component of these use regulations is based, not on the disabled status of the residents, but on the non-family status of the groups.

E. Exception to the Distance Requirements: The owner and applicant may request an excep-

tion to the distance requirement from City Council. Chapter 20.04 Administrative Provisions, Article VI Changes and Amendments shall be followed to request this exception. The application fee for the public hearing shall be waived. A determination must be made by city council that the enforcement of the distance prohibition in the particular instance:

1. Is not in the best interest of the public;

2. Constitutes waste or the inefficient use of land or other resources;

3. Creates an undue hardship on an applicant;

4. Does not serve its intended purpose;

5. Is not effective or necessary; or

6. After consideration of the health, safety, and welfare of the public and the equities of the situation, determines is in the best interest of the community.

F. In accordance with the Federal Fair Housing Act, this use as defined does not extend to the following people:

1. Persons who claim to be disabled solely on the basis of having been adjudicated a juvenile delinquent;

2. Persons who claim to be disabled solely on the basis of having a criminal record;

3. Persons who claim to be disabled solely on the basis of being registered as a sex offender;

4. Persons who currently use illegal drugs;

5. Persons who have been convicted of the manufacture or sale of illegal drugs; or

6. Persons with or without disabilities who present a direct threat to the persons or property of others.

G. Measurements of distance in this section are taken from property line to property line.

H. In the event a conflict arises regarding the distance requirement, the owner or operator of a disabled group dwelling will have the burden of establishing "first in time" rights for purposes of complying with the distance requirement.
(Ord. No. 18241, § 3, 9-9-2014)

20.10.180 Drilling facilities.

Drilling of oil or gas wells or other similar types of shaft mining shall meet the following minimum requirements:

A. Minimum site of five acres, with minimum lot width of two hundred feet, minimum lot depth of two hundred feet and minimum front, side, side street and rear yard of fifty feet;

B. Any structure exceeding fifty feet in height shall maintain setbacks from all property boundaries on streets equal to the height of the structure;

C. A plan is submitted and approved by city council as part of the special permit application, showing the reclamation of the site and its future use after the extraction has been completed. Approval of the fire chief, building official and the director of the department of environmental services or his designee shall be required and the use shall comply with all appropriate regulations. A bond or other guarantee satisfactory to the city attorney and in an amount approved by the building official may be required by city council as a guarantee that the reclamation plan will be carried out. (Ord. 16817 § 5, 2008; Ord. 16653 § 2 (part), 2007)

20.10.185 Drive-thru facilities.

A principal use shall not be permitted to have a drive-thru facility under the following conditions:

A. The property is located within the C-5 (Commercial) zoning district.
(Ord. No. 019734, § 3, 5-28-2025)

20.10.190 Dry cleaning shops.

No cleaning fluid with a base of petroleum or one of its derivatives shall be used. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 019734, § 3, 5-28-2025)

20.10.200 Energy conversion systems.

A. Solar energy conversion systems components, including, but not limited to, absorption cooling units, collectors, heat exchangers, photovoltaic cell arrays, solar power concentrat-

ing arrays, solar reflectors, including solar dishes and storage water tank units may be permitted as accessory uses and/or buildings in any district in accordance with building permit requirements where applicable and in compliance with the following conditions:

1. If mounted on the main building, it shall not exceed the maximum height limit as provided for such buildings by more than ten feet;

2. If mounted on any accessory structures, it shall not exceed more than ten feet above the top of the structure;

3. No portion of the system shall project over any property line or required front, side, or side street setback.

B. Wind-driven generators or wind-driven pumps, where permitted, are subject to the following conditions:

1. Must be located in the rear yard for all residential Zoning Districts R-1, R-2, R-2A, R-3, R-3A, R-4, R-5, A-1, A-2, A-3, A-4, A-O and residential special districts P-R I, P-R II, SRR, and P-MD;

2. Shall be in compliance with the guidelines of the Federal Aviation Administration and shall not exceed eighty feet in height in commercial C-1, C-2, C-3, C-4 and manufacturing M-1, M-2, M-3 zoning districts and not to exceed thirty five feet in height in residential R-1, R-2, R-2A, R-3, R-3A, R-4, R-5, A-1, A-2, A-3, A-4, A-O and residential special districts P-R I, P-R II, SRR, and P-MD;

3. Any propeller blades or similar devices shall come no closer than ten feet to the ground or to any structure, and shall have clearance from any overhead wires in accordance with electric utility company requirements;

4. No portion of the system shall project over any property line or required front, side, or side street setback;

5. The structural integrity of every wind-driven generator and pump, regardless of height, shall be designed and sealed by a registered professional engineer in the state of Texas;

6. The construction of wind-driven generator and pump foundations must comply with the building code of the city;

7. Noise and vibration levels must be in compliance with Title 9 (Health and Safety) of this Code. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 18454, § 1, 1-12-2016)

20.10.210 Explosives, storage.

Storage of explosives is permitted by special permit where the location and the safeguards imposed to regulate the possession, transportation and use are approved by the fire chief, and in compliance with all applicable state and federal regulations. City council must find that the location and safeguards are reasonable to protect the public safety. Special permits for storage of explosives shall not be granted for more than one year, but may be renewed by following the same procedure as required for original issuance. (Ord. 16653 § 2 (part), 2007)

20.10.220 Farming.

Notwithstanding any other provisions of this title, in all zoning districts except for the PMD (Planned Mountain Development) or the NOS (Natural Open Space), a property may be used wholly or partially for farming and harvesting of field, tree and bush crops as an interim use in any zoning district until a change in use or development occurs on the property. The change in use or development of the property shall be for a use legally permissible within the base-zoning district or as permitted by special permit approved by City Council. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17306, § 4, 4-6-2010)

20.10.230 Feed yards.

A. A minimum site of twenty acres is required.

B. Buildings or feeder lots for five or more cattle shall not be closer than five hundred feet from the nearest property line.

C. Written evidence of approval from the Texas Commission on Environmental Quality

(TCEQ) to determine any additional environmental protection requirements must be submitted with the building permit application. A feed yard may not be located within certain sensitive systems, including, but not limited to: federally-designated wetlands, designated flood plains, and state-designated areas of "Special Sensitivity" to environmental impacts due to topography, soil type (i.e., sand, karst, etc.), water quality, natural habitat significance, or public health and welfare protection.

D. Shall comply with Title 7 of this Code. (Ord. 16653 § 2 (part), 2007)

20.10.240 Freight and passenger terminals.

The following uses are considered freight and passenger terminals: transportation terminal type A, transportation terminal type B, passenger station, motor-carrier terminal, railyard, auxiliary rail facilities, airport, intermodal facility, heliport, airpad, helistop, interlocking tower, diesel maintenance facility, and railroad repair shop; and

The proposed development shall comply with the development standards specified below which shall be required on the building permit application:

A. Lighting shall comply with Title 18 of this Code.

B. Screening. A screening wall complying with Chapter 20.16 shall be provided along the property lines abutting an existing residential use or an existing R, A, PR, SRR, PMD or NOS zoning district, and adjacent to any right-of-way or easement which separates the property from a residential use or an R, A, PR, SRR, PMD or NOS zoning district, except for necessary ingress and egress and where otherwise prohibited by this Code

C. Perimeter Treatment. A minimum perimeter setback shall be provided along the property lines abutting an existing residential use or an existing R, A, PR, SRR, PMD or NOS zoning district, and adjacent to any right-of-way or easement which separates the property from a residential use or an R, A, PR, SRR, PMD or NOS zoning district, to minimize potential negative impacts created by any activity within the site as follows:

Use	Setback (in feet)
Passenger station	100
Transportation terminal type A or B	100
Railyard, auxiliary rail facilities	100
Railroad repair shop	100
Diesel maintenance facility	100
Intermodal facility	100
Airport	1500
Heliport	500
Airpad	150
Helistop	150
Motor-carrier terminal	050
Other uses	050

1. Within the minimum perimeter setback, employee and visitor off-street parking and necessary walks and drives shall be allowed. The use of the property within the designated perimeter setback for storage of containers, truck chassis, equipment, trailers or truck parking areas is expressly prohibited. This perimeter setback shall replace the required yard standard of the district where it abuts the residential use or residential zoning district.

2. Where a right-of-way or easement separates the property from a residential use or residential zoning district, the width of such right-of-way or easement shall be included in meeting the perimeter setback requirement, provided, however, that the setback from the property line shall never be less than that required in the district.

3. The minimum perimeter setback may be reduced by the zoning administrator when topographic conditions negate the buffering effect of the additional setback, provided, that the setback from the property line shall never be less than that required in the district. A fee for processing requests to reduce the minimum perimeter setback requirement shall be as provided in Chapter 20.04.

D. Additional requirements for passenger terminals (except an airpad or helistop).

1. A lobby or waiting room with a floor area of not less than two hundred square feet must be provided.

2. Seating in the lobby or waiting room must be provided at a minimum of one seat for every twenty-five square feet of floor area in the lobby or waiting room.

3. The outdoor sale of general merchandise or food is prohibited, except for vending machines.

4. No loading or unloading of passengers is permitted on public right-of-way.

5. Analysis Required. Traffic and parking demand studies must be submitted with an application for a special use permit.

6. Outside Speaker Restrictions. Outside speakers are not permitted within fifty feet of a property line abutting a residential district or use. Outside speakers, when permitted, must face away from adjacent properties. (Ord. 16653 § 2 (part), 2007)

(Ord. No. 17306, § 4, 4-6-2010)

20.10.250 General warehousing.

A. Screening. A screening wall complying with Chapter 20.16 (Screening and Fencing) shall be provided along the property lines abutting an existing residential use or an existing R, A, PR, SRR, PMD or NOS zoning district, and adjacent to any right-of-way or easement which separates the property from a residential use or an R, A, PR, SRR, PMD or NOS zoning district, except for necessary ingress and egress where otherwise prohibited by this Code.

B. Perimeter Treatment. A minimum perimeter setback of fifty feet shall be provided along the property lines abutting an existing residential use or an existing R, A, PR, SRR, PMD or NOS zoning district, and adjacent to any right-of-way or easement which separates the property from a residential use or an R, A, PR, SRR, PMD or NOS zoning district, to minimize potential negative impacts created by activity within the site.

1. Within the minimum perimeter setback, employee and visitor off-street parking and loading and necessary walks and drives shall be allowed. This perimeter setback shall replace the required yard standard of the district where it abuts the residential use or residential zoning district.

2. In the case where a right-of-way or easement separates the property from a residential use or residential zoning district, the width of such right-of-way or easement shall be included in meeting the perimeter setback requirement, provided that the setback from the property line shall never be less than that required in the district.

3. The minimum perimeter setback may be reduced by the zoning administrator when topographic conditions negate the buffering effect of the additional setback, provided, that the setback from the property line shall never be less than that required in the district. A fee for processing requests to reduce the minimum perimeter setback requirement shall be as provided in Chapter 20.04.

C. Retail sales are permitted as part of the warehouse use provided the retail sales floor area does not exceed ten percent of the total warehouse floor area.

1. Up to one hundred percent of the total warehouse floor area may be devoted to retail sales activities during an occasional warehouse sale.

2. No more than four occasional warehouse sales may be permitted in any twelve-month period and each occasional warehouse sale must be limited in duration to no more than three consecutive calendar days. (Ord. 16653 § 2 (part), 2007)

(Ord. No. 17306, § 4, 4-6-2010)

20.10.260 Governmental uses and buildings.

Where permitted in a district, public or governmental buildings and uses, public, private or parochial schools, libraries, churches and philanthropic institutions shall be allowed to operate a collection facility subject to the standards in Section 20.10.520. When a special permit is required for heavy governmental uses in or abutting residentially zoned property, a screening wall shall be required at any lot line abutting residentially zoned

property. (Ord. 16761 § 1 (part), 2007: Ord. 16653 § 2 (part), 2007)

20.10.265 Group residential facilities.

A. Occupancy: Seven or more disabled persons.

B. An on-site resident staff person must be present at all times, whenever any residents of the facility are present.

C. The establishment shall be operated and maintained in the character of a residential dwelling in harmony with and appropriate in appearance to the character of the general vicinity in which it is to be located.

D. Districts Permitted: when located at least 1,000 feet from all other licensed disabled group dwellings and licensed group residential facilities, by special permit in the following districts: R-1, R-2, R-3, R-4 and R-5, RMH, and in special purpose districts R-F; and by right in the following districts A-1, A-2, A-3, A-4, A-0 A-3/0, A-M; C-1, C-2, C-3, C-4, C-5; by Detailed Site Plan in the following special purpose districts PMD, S-D, P-R I, P-R II, and SRR; by Master Zoning Plan in special purpose district R-MU. The spacing component of these use regulations is based, not on the disabled status of the residents, but on the non-family status of the groups.

E. Exception to the Distance Requirements: The owner and applicant may request an exception to the distance requirement from city council. Chapter 20.04 Administrative Provisions, Article VI Changes and Amendments shall be followed to request this exception. The application fee for the public hearing shall be waived. A determination must be made by city council that the enforcement of the distance prohibition in the particular instance:

1. Is not in the best interest of the public;

2. Constitutes waste or the inefficient use of land or other resources;

3. Creates an undue hardship on an applicant;

4. Does not serve its intended purpose;

5. Is not effective or necessary; or

6. After consideration of the health, safety, and welfare of the public and the equities of the situation, determines is in the best interest of the community.

F. In accordance with the Federal Fair Housing Act, this use as defined does not extend to the following people:

1. Persons who claim to be disabled solely on the basis of having been adjudicated a juvenile delinquent;

2. Persons who claim to be disabled solely on the basis of having a criminal record;

3. Persons who claim to be disabled solely on the basis of being registered as a sex offender;

4. Persons who currently use illegal drugs;

5. Persons who have been convicted of the manufacture or sale of illegal drugs; or

6. Persons with or without disabilities who present a direct threat to the persons or property of others.

G. Measurements of distance in this section will be taken from property line to property line.

H. In the event a conflict arises regarding the distance requirement, the owner or operator of the group residential facility will have the burden of establishing "first in time" rights for purposes of complying with the distance requirement.

(Ord. No. 18241, § 3, 9-9-2014; Ord. No. 18589, § 2, 11-1-2016)

20.10.266 Halfway house.

A. A special permit for a halfway house shall be issued for a two year time period. Periodic review periods may be established as part of the special permit.

B. The treatment of alcoholic, narcotic, or psychiatric problems is allowed under this use if expressly permitted by the special permit.

C. A halfway house may not be permitted within one thousand (1,000) feet of another halfway house or a homeless shelter.

D. Additionally, a halfway house may not be permitted within one thousand (1,000) feet of the following:

1. A church;

2. A public or private elementary or secondary school;

3. A nursery school, kindergarten, child care center, day nursery or day care center;

4. A university, college, vocational or business school;

5. A boundary of any residential district;

6. A public park; or

7. The property line of a lot devoted to any residential use.

E. A security plan must be submitted with an application for a special permit for a halfway house. The security plan must demonstrate compliance with the security requirements of state law. The director shall furnish a copy of security plans for halfway houses to appropriate city, county, state, and Federal (if applicable) agencies for their review and approval before the city plan commission and the city council consider the application. Provisions addressing security must be included in any ordinance granting a special permit for a halfway house. A compliance report must be submitted to the director every two years after the date of passage of an ordinance granting a special permit and with each application for renewal of a special permit for a halfway house.

F. Measurements of distance under this paragraph are taken radially. "Radial" measurement means a measurement taken along the shortest distance between the nearest point of the building site of the halfway house and the nearest point of the property line of another use, or of a protected zoning district boundary.

G. Within ninety (90) days of the passage of this ordinance the owner or operator of an existing halfway house must comply with the registration provisions of Section 20.22.070 and comply with the provisions of Chapter 20.22 Nonconforming Situations.

(Ord. No. 18218, § 3, 7-29-2014)

20.10.270 Home occupation uses.

A. Where permitted as an accessory use in a district, a home occupation shall meet the following requirements:

1. Home occupations shall be secondary and incidental to the use of the premises as a dwelling, and may only be conducted by the owner or tenant of the residence, or a family member of the owner or tenant;

2. A home occupation may not produce noise, vibration, smoke, dust, odor, heat, glare, fumes, electrical interference, or waste run-off outside the dwelling unit or garage;

3. Shall typically operate during the hours of seven a.m. to seven p.m. for outdoor activities and seven a.m. to ten p.m. for indoor activities; except that certain residential uses may be operated on a 24-hour basis;

4. Instructional classes may be held outside of the main building, a maximum of six students shall be allowed in each session;

5. Shall not conduct outdoor activities unless the activities are screened from the neighboring property by a solid fence of at least six feet in height;

6. Home occupation uses shall minimize negative impacts on adjoining properties and the residential character of the lot and dwelling shall be maintained. A home occupation that requires a structural alteration of the dwelling to comply with the nonresidential construction code is prohibited, except for modifications to comply with accessibility requirements;

7. No more than normal household vehicular traffic shall be generated by the home occupation;

8. No home occupation shall generate delivery or pick-up by commercial vehicles more frequently than normal household traffic;

9. No more than two persons who are not residents may be employed on the site at any one time per home occupation; provided, however, the number of employees permitted for child and adult care facilities may exceed two when required by license or state law;

10. No more than twenty-five percent of the gross floor area of the dwelling shall be used in accommodation of the home occupation, except for licensed boarding home, child and adult personal care facilities;

11. No equipment, materials, or merchandise associated with the home occupation shall be displayed or stored where visible from any street or public right-of-way;

12. One sign, not exceeding one square foot in sign area and not internally illuminated shall be permitted for a home occupation. A sign permit shall not be required for a sign complying with this section;

13. Only products made on the premises or incidental to the permitted home occupation may be sold on the premises.

B. Uses permitted as home occupations that do not require a license include:

1. Consultation office, to preclude physical treatment, of a physician, dentist, licensed massage therapist, or other similar licensed medical practitioner;

2. Office of a lawyer, legal assistant, psychologist, psychiatrist, accountant, business management, professional member associations, bookkeeper, auditor, broker, tax consultant, financial consultant, travel agent, appraiser, architect, landscape architect, interior designer, draftsman, engineer, urban planner, builder, contractor, designer, desktop publisher, advertising professional, biologist, botanist, geologist, archeologist, paleontologist, secretarial and clerical services;

3. Office of a private investigator, body guard, personal trainer, nutritionist, clown to include magician entertainment, disc jockey;

4. Office of computer software and hardware consultant to include hardware repair, Web master, data processor, Internet entrepreneur;

5. Office of plumber, electrician, landscape services, locksmith, carpet cleaner, HVAC contractor, painter, janitorial services;

6. Shop of dressmaker, seamstress, tailor;

7. Office of salesperson, sales representative, real estate agent, insurance agent, caterer, event planner;

8. Studio of author, composer, artist, painter (fine art), sculptor, photographer;

9. Studio of music or dance instructor, martial arts instructor, personal trainer, tutor;

10. Shop for arts and crafts such as making of stained glass, ceramics, jewelry, lapidary work, rug weaving, floral work;

11. Shop for making and repair of portable musical instruments, bicycle repair;

12. Office of telemarketing service, shuttle service, limousine service;

13. Occupations similar to those listed above.

14. Reserved.

C. Reserved.

D. Application for a home occupation license shall be made pursuant to the requirements of Title 5 (Business taxes, licenses and regulations) of this Code.

E. A home occupation shall not include the following uses:

1. Physical or medical treatment of persons or animals, animal hospitals or animal breeding;

2. Beauty shops or barber shops;

3. Carpenter shops;

4. Electrical shops;

5. Massage establishments, other than those employing massage therapists licensed by the state;

6. Plumber shops;

7. Heating and air conditioning shops;

8. Radio shops;

9. Auto repairing or painting;

10. Furniture repairing;

11. Sign painting;

12. Contractors yards;

13. Scrap and salvage services;

14. Restaurants;

15. Cocktail lounges;

16. Rental outlets;

17. Equipment sales;

18. Adult oriented businesses;

19. Recycling centers;

20. Drop-off recycling collection facilities;

21. Businesses involving the repair of any type of internal combustion engine, including equipment repair services.

(Ord. 16653 § 2 (part), 2007; Ord. No. 17442, § 19, 10-26-2010; Ord. No. 17577, §§ 5—7, 7-7-2011; Ord. No. 18589, § 3, 11-1-2016)

20.10.275 Homeless shelter.

A. Special permits issued for a homeless shelter shall expire without any further action by the city council when: the use for which the permit was issued changes to another use; the facility ceases to operate for one hundred twenty days or more; or the occupancy changes.

B. An application for this shelter shall include an operational plan of the homeless shelter. The operational plan shall provide a description of the intended use and sufficient details to adequately describe the intended operations of the center.

C. The operational plan may include the following:

1. An organizational tree including an estimated total number of professional staff and volunteers that will work at the shelter;

2. The estimated number of beds to be provided;

3. The estimated average population per month;

4. A description of the services to be provided, such as job placement, drug and alcohol treatment, and other rehabilitative or training services;

5. A description of the population expected to be served, for example women, women and children, single men, families, etc.;

6. Expected length of stay per person;

7. Any other information the applicant believes could be helpful to explain the operation and compatibility of the proposed shelter with the proposed location.

D. A homeless shelter may not be permitted within one thousand (1,000) feet of another homeless shelter or halfway house.

E. A homeless shelter may not be permitted within one thousand (1,000) feet of a school or daycare.

F. Measurements of distance under this section are taken radially. "Radial" measurement means a measurement taken along the shortest distance between the nearest point of the building site of the halfway house and the nearest point of the building site of another use, or of a protected zoning district boundary.

G. Within ninety (90) days of the passage of this ordinance the owner or operator of an existing homeless shelter must comply with the registration provisions of Section 20.22.070 and comply with the provisions of Chapter 20.22 Nonconforming Situations.

H. Homeless shelters are subject to the provisions of the City's Nuisance Ordinance codified in Section 9.16. It is unlawful and constitutes a nuisance for any person in the city to carry on any trade, business or occupation injurious to the health of those who reside in the vicinity, or to suffer any substance which shall have that effect to remain on the premises in his possession.
(Ord. No. 18241, § 3, 9-9-2014)

20.10.280 Infill development.

A. Purpose. The purpose of these regulations is to encourage infill development by simplifying procedures for plan approval, provide a more flexible approach to design and development of infill development, permit the conversion or adaptive reuse of buildings and properties, encourage planning and design flexibility and innovations, create a community environment that is enhanced by a mix of residential, commercial, recreational, open space, employment and institutional uses, and assure community compatibility and an efficient use of land and public services. Additionally, the regulations herein serve to supplement the city's tax base by addressing the issue of urban blight and providing relief mechanisms for developing historically underutilized and vacant parcels within the city's urban core which is in keeping with the city's adopted goals and policies.

B. Location Criteria. An infill development may be located on any parcel of land which meets at least one of the following criteria:

1. Any parcel of land designated within a historic district and developed in compliance with Section 20.20.080.

2. Any parcel of land within the downtown plan area.

3. Any parcel of land annexed prior to 1955.

4. Parcels of land within or that share a common property line to an existing subdivision platted for no less than twenty-five years.

5. Any brownfield or greyfield development.

6. Parcels of land within areas identified by the city's comprehensive plan as G-2 traditional neighborhood and G-7 industrial and/or railyards.

7. Redevelopment of sites previously or currently occupied by civic buildings, public spaces or educational facilities as defined in Section 20.10.145.

C. Design. Applications for infill development shall be designed in a manner that is consistent and compatible to the massing and character of the surrounding properties and the general design policies and guidelines included in the adopted comprehensive plan. Consistency of massing and character shall be determined as shown on the site plan with typical elevations and proposed construction materials, that the proposed construction is compatible with the overall design features and building development of the neighborhood within which the proposed infill development is located. Design features include, but shall not be limited to, building height, architectural style, building materials, landscape and setbacks. Additionally, applications for infill development must meet all of the following mandatory design requirements and no less than three of the selective design guidelines:

1. Mandatory Design Requirements: Applications for infill development shall comply with all of the following requirements.

i. Where on-site surface parking is proposed, it shall be located at the rear of the property and when possible accessed via alleyway; or at the side of the property and screened in accordance with Section 21.50.070(F)(5). On-site surface parking shall not be located in the front yard.

1. The zoning administrator may grant an exception to this requirement when the following site conditions exist:

a. Exceptional topographical conditions exist that result in an access driveway with a percent grade greater than fourteen percent.

b. Existing development that shares a common property line at the rear of the property.

c. Lots with less than fifty feet of street frontage.

d. Alley right-of-way is unimproved or unpaved.

e. Redevelopment of single family residential parcels in which parking in the rear would not be consistent with existing development along the block face.

2. When on-street parking directly abutting the property is not present, the applicant may request the installation of on-street parking. The application fee may be subject to reimbursement.

3. Applicants shall have the opportunity to appeal the zoning administrator's decision in the event of a denial any such determination by the zoning administrator in accordance with Section 2.16.040.

ii. Buildings shall be placed on the parcel such that the principal orientation is toward the main street and the principal entrance is from the sidewalk.

1. For purposes of this section, main street shall be defined as the street of higher classification within the city's adopted thoroughfare plan. In cases where adjacent streets are of the same classification the zoning administrator shall determine the main street based on the orientation of adjacent buildings along the same block face.

iii. For proposals abutting existing residential development the front building setback shall not deviate from the average front setback of lots within the same block as the proposed development by more than fifteen percent.

2. Selective Design Guidelines: Applications for infill development shall comply with no less than three of the following requirements.

i. Any new structure with a ground floor commercial use shall demonstrate that building facades facing public rights-of-way have a majority (fifty percent or more) transparent surface on the ground floor. Transparent surface elements include, but are not limited to, doors and non-opaque windows.

ii. The percentage of gross floor area divided by the total lot area for infill development projects shall be no less than eighty percent.

iii. The project shall propose a mix of land use categories as classified in Section 20.08.030 (e.g., residential and commercial).

iv. The project shall propose commercial activity within or directly abutting an adjacent street sidewalk. Examples of qualifying commercial activity include, but are not limited to, the placement of outdoor seating and tables or other sidewalk furniture, and stands for the sale of goods and services.

v. The total width of the primary structure shall be greater than or equal to 80 percent of the total lot width along the main street. For the purposes of this calculation, any necessary vehicular access driveway shall be subtracted from the total lot width.

vi. The project shall demonstrate compliance with one of the architectural styles defined in the Community Design Manual of Plan El Paso.

vii. The height of any proposed infill development shall be equal to at least half the width of the widest abutting street.

viii. The project includes low impact storm water management including, but not limited to depressed landscaped areas, bioswales, vegetated roofs, pervious pavements, capture and reuse systems.

ix. One of the following is demonstrated:

1. The project is certified by the United States Green Building Council LEED-BD+C, LEED HOMES, LEED-ND certification system or any equivalent, nationally recognized alternative; or

2. The architect or engineer of record is LEED accredited; or

3. The project qualifies for and participates in the City of El Paso Green Building Grant Program.

x. For projects in residential districts the applicant shall demonstrate that the parcel has been vacant or underdeveloped for no less than fifteen years. For purposes of this guideline only, underdeveloped shall be defined as parcels which do not meet the maximum density permitted in the base zoning district.

xi. For projects in residential districts the applicant shall demonstrate that a private frontage as describe in Chapter 21.80, Table 7a through 7e is proposed.

D. Setback Provisions. The side, front and rear setback requirements of the base zoning district for the property on which the infill development is proposed may be reduced up to one hundred percent by city council.

E. Parking.

1. The minimum parking requirements enumerated in Chapter 20.14 (Off-Street Parking and Loading Requirements) shall be automatically reduced by fifty percent for any use within a designated infill development where on-street parking is available, or, after coordination with the streets and maintenance department, is agreed to be installed at the applicant's own cost. If on-street parking is not available along the block face of the proposed development, proof of parking mitigation in the form of a parking reduction impact study indicating that a reduction in the off-street parking requirement will not create a safety hazard or other condition inconsistent with the objectives of Chapter 20.14, or shared parking agreement shall be required for any requests for parking reduction.

2. The minimum parking requirements enumerated in Chapter 20.14 (Off-Street Parking and Loading Requirements) may be reduced up to one hundred percent for any use within a designated infill development upon submission of a parking reduction impact study indicating that a reduction

in the off-street parking requirement greater than fifty percent will not create a safety hazard or other condition inconsistent with the objectives of Chapter 20.14.

3. Where on-street parking directly abutting the property is not available, the applicant may request the installation of on-street parking. The application fee may be subject to reimbursement.

F. Building Height. The maximum building height permitted in the base zoning district may be increased to meet a maximum building height-to-street width ratio of 1:1 for parcels abutting collector and arterial streets.

G. Landscaping. All applications shall comply with Chapter 18.46. Some applications may be eligible for a reduction in the required landscaping in accordance with Chapter 18.46.090(A)(3).

H. Density. The maximum number of dwelling units per gross acre permitted in the base zoning district may be increased up to fifty percent for an infill development, or as approved by city council.

I. Lots. There shall be no minimum area requirement for lots within an infill development unless otherwise provided in the ordinance designating the infill development overlay.

J. Use Regulations. Unless the ordinance designating the infill development overlay provides otherwise, a proposed infill development may be approved for any use permitted in the base zoning district in which it is located. However, the ordinance designating an infill development overlay may provide a list of principal uses, accessory uses and prohibited uses pursuant to a specific area plan adopted by the city council.

K. Exclusions. The provision of this section shall not be utilized to legalize any existing development which does not conform to the dimensional standards of the underlying zoning district. Additionally, the following development shall be excluded from the provisions of this section:

1. Any greenfield development.

2. Additions to existing structures on lots restricted to single family residential use which do not increase the density.

3. Structures that encroach into required setbacks built without permits.

(Ord. No. 18688, § 2, 5-30-2017)

Editor's note—Ord. No. 18688, § 2, adopted May 30, 2017, amended Section 20.10.280 in its entirety to read as herein set out. Former Section 20.10.280, pertained to similar subject matter, and derived from Ord. No. 16653 § 2(part), 2007.

20.10.290 Keeping of animals for personal use or enjoyment.

Permitted as an accessory use and not as a business, in all districts, when in compliance with Title 7 of this Code. (Ord. 16653 § 2 (part), 2007)

20.10.300 Reserved.

Editor's note—Ord. No. 019734, § 3, 5-28-2025, repealed § 20.10.100, which pertained to laundromats and derived from Ord. 16653 § 2 (part), adopted 2007.

20.10.310 Liquefied petroleum storage and dispensing.

Liquefied petroleum gas, storage and dispensing as a commercial operation. Special permits for such may be issued only upon recommendation of the fire chief and are subject to revocation at any time upon recommendation of the fire chief or upon finding by the city council that the operation is no longer in the public interest. (Ord. 16653 § 2 (part), 2007)

20.10.320 Live-work flex units.

Where permitted in a zoning district, live-work flex units encourage design solutions for compatible mixed uses and are subject to the following restrictions and provisions:

A. Restricted Category.

1. A live-work flex unit under this category shall be permitted within the apartment, commercial, manufacturing and special purpose zoning districts enumerated in the Table of Permissible Uses, Chapter 20.08 (Permissible Uses) of this title.

2. This category permits a mix of single-family residential and office usage and is only for artisans or professionals with no more than one employee and two customers at any time.

3. Building requirements are the same as for single-family residential uses, commercial signage is disallowed, and no separation is required within the flex unit. It is a wide-open unit, where the workplace and living area are fully integrated, and generally built on their own lots or stacked as in a loft building. These units do not permit walk-in trade of retail or food service.

4. Off-street parking shall satisfy the requirements for a single-family residential unit pursuant to Chapter 20.14 (Off-Street Parking and Loading Requirements).

5. The area of the office usage shall be limited to no more than five hundred square feet of gross floor area of the flex unit.

B. Open Category.

1. A live-work flex unit under this category shall only be permitted within the commercial, manufacturing and special purpose districts enumerated in the Table of Permissible Uses, Appendix A of this title.

2. This category allows a single-family residential unit with any permitted office or commercial use allowed in the base-zoning district.

3. There is no minimum or maximum gross floor area requirement.

4. Building, off-street parking and signage requirements shall satisfy commercial standards for the entire area of the flex unit.

5. There is no limitation on the number of employees or customers at any time at the live-work flex unit. (Ord. 16653 § 2 (part), 2007)

20.10.330 Loading spaces (serving another property).

A. Any otherwise permitted use for which the loading requirements of Chapter 20.14 are to be satisfied by loading spaces on property which is located within two hundred fifty feet of the property requiring the loading spaces.

B. Loading spaces serving another property which are located partially or totally within two hundred fifty feet of the property requiring the loading spaces. (Ord. 16653 § 2 (part), 2007)

20.10.340 Manufactured home parks.

A. Each manufactured home space shall have a minimum area of at least three thousand square feet, with a minimum width of thirty feet and minimum depth of ninety feet.

B. Minimum distance between structures:

1. The minimum distance between manufactured home structures, including a garage or carport, shall be ten feet;

2. The minimum distance between manufactured home structures, including a garage or carport, and manufactured home park community buildings shall be ten feet;

3. The minimum distance between a structure and interior access roads shall be ten feet.

C. Open space consisting of at least fifty percent of the lot area of an interior lot or forty percent of the lot area for a corner lot shall be provided.

D. A minimum of five percent of the gross site area of the park shall be devoted to recreational facilities and located in a central location. Community buildings and community use facilities, including adult recreation and child play areas, swimming pools, may be included in computing the area of recreational facilities. However, vehicle-parking areas shall not be used in such computation.

E. Screening. There shall be a screening wall complying with Chapter 20.16 at the perimeter of the manufactured home park. This wall shall be six feet in height at the rear property line and any interior side property lines, and forty-two inches in height at the front property line and any side property lines abutting a side street, except for necessary ingress and egress and except within twenty feet of an intersection, where the maximum height is thirty-six inches.

F. There shall be a minimum of two hundred cubic feet of storage space per manufactured home unit located either in community accessory buildings accessible to all manufactured home park units or in individual accessory buildings at each manufactured home stand.

G. Accessory buildings may be attached to the manufactured home or if separate shall be not less than five feet away from the manufactured home. All additions to manufactured homes shall be engineered and built to comply with currently applicable manufactured home construction standards and must be of such design that the structural components could be disassembled upon removal of the manufactured home unit.

H. One off-street parking space for each manufactured home unit and one off-street parking space for guest parking for each three manufactured home units shall be provided within the manufactured home park in accordance with the standards provided in Chapter 20.14 (Off-Street Parking and Loading).

I. The height limit for any structure intended for occupancy in the manufactured home park shall be thirty-five feet.

J. Internal streets and all traffic control devices and street name signs within a manufactured home park shall be privately owned, built, and maintained. Internal streets shall be designed for safe and convenient access to all spaces and to common facilities.

1. Internal streets shall be kept open and free of obstruction to allow emergency vehicles to have access to all spaces and to common facilities;

2. Internal streets in a manufactured home park shall be constructed and maintained to city standards. They shall be kept free of cracks, holes, and other hazards;

3. An internal street roadway shall have a minimum width of thirty-five feet;

4. All internal streets shall be named and all manufactured homes shall be numbered to conform to block numbers on adjacent public streets. Street name signs shall be of a color and size contrasting with those used for public streets. Street name signs and address numbers shall comply with city code requirements;

5. Each internal street shall be provided with street lighting.

K. Tenant Responsibilities. Each park tenant shall maintain the tenant's manufactured home and lot in compliance with the following:

1. The manufactured home shall be properly placed on its stand and anchored in a manner approved by the city and state. All utilities shall be properly installed in accordance with the instructions of the park's owner or operator, and in accordance with the city code. The building official has the right to refuse to issue permits to connect a manufactured home up to utilities until the tenant or owner or operator of the park shows proof that the manufactured home has been anchored in accordance with city and state regulations;

2. A noncombustible skirting shall be installed around the manufactured home. Such skirting may include any vents, screens, and/or openings necessary for utility and mechanical system hookups;

3. The skirting, and any porches, stairways, awnings and other additions shall be constructed and installed per city code requirements, and maintained in good repair. All requirements of the building code pertaining to single-family dwellings for like structures or additions shall be applicable;

4. The space beneath a mobile shall not be used for storage of flammable or combustible items;

5. A person commits an offense if the person is a park tenant and knowingly fails to maintain the person's manufactured home and lot in compliance with this section;

6. A person commits an offense if the person owns or operates a park and knowingly allows a violation of this section by a tenant.

L. Utilities. All utilities shall be installed in compliance with applicable code requirements.

M. Recreational Vehicles in Parks.

1. A maximum of five percent of the gross area of a park may be dedicated to overnight or short-term use (no longer than fourteen consecutive days) by recreational vehicles.

2. Such portion of the park shall be clearly delineated and shall comply with all requirements of Title 20 for recreational vehicle parks except the requirement for a minimum number of spaces.

3. A person commits an offense if the person owns or operates a park knowingly allows a violation of this section by another person. (Ord. 16653 § 2 (part), 2007)

20.10.350 Manufacturing uses (not listed) in M-Districts.

A. Light manufacturing uses similar to those listed in Chapter 20.08 (Permissible Uses) which do not create any more danger to health and safety in surrounding areas and which do not create any more offensive noise, vibration, smoke, dust, lint, odor, heat, glare or electrical impulse than that which is generally associated with these uses, may also be permitted in the zoning district, subject to a determination by the zoning administrator in accordance with the provisions of Section 20.08.040.

B. The administrator may require an engineering report describing the nature of a process or use and probable impact at property lines. (Ord. 16653 § 2 (part), 2007)

20.10.360 Mixed-use development.

A. Special Development (S-D).

1. Design Requirements—Open Space and Recreation Area. The amount and arrangement of

open space and recreation area should be in accord with standards of the comprehensive plan and the purposes of the design of the development, including preservation of natural landscape, active recreation, passive recreation, and improvement of view as may be appropriate to a particular case. Both private and common use open space are to be encouraged. Open space proposed for common or general public access shall be so designated on the development permit and subdivision plat. Satisfactory provision for the maintenance of common open space shall be provided in accordance with the procedure in Chapter 20.04.

2. Design Requirements—Reservation of Environment. In all S-D development, the elements of natural environment including existing vegetation, arroyos, flood-prone areas, mountains, steep slopes and other features shall be considered in planning the design and layout of buildings, location of streets and preservation of open spaces, in order to further the preservation of the natural environment.

3. The provisions of Chapter 20.20 (Historic Designations) where applicable, shall continue to apply in addition to the provisions of this section.

4. Perimeter Treatment. The perimeter of the planned development shall be designed to ensure compatibility with adjacent existing or proposed development, if known, by provision of compatible uses and structures, setbacks, masonry walls, landscaping or other treatment.

5. Height Regulations. No building shall exceed three stories or forty-five feet in height, except as follows:

a. As provided in Chapter 20.12;

b. Where the development would consist of twenty-five acres or more; or

c. Where, after city plan commission recommendation, city council approves an exception to these height restrictions under the following conditions:

i. The authorized height is compatible with the uses, appearance and environment of adjacent areas,

ii. The applicant submits a traffic study describing traffic volumes and impact of proposed development on adjacent streets,

iii. The council finds that the proposed development mitigates those traffic impacts and provides for an acceptable level of service,

iv. The site is located on an arterial street (collector, minor or major) that is served by a regularly scheduled mass transit line, and

v. Any other condition reasonably necessary to protect the health, safety and welfare of the general public.

6. Review Standards for Establishment of S-D District.

a. The city plan commission and the city council shall review the conformity of the proposed development or redevelopment with the comprehensive plan. The commission and the city council shall study the relationship between uses of high intensity permitted in the S-D district and uses of low intensity, existing or future, outside the proposed S-D district to ascertain compatibility, but shall not reduce the amount of such uses below the maximum established by the section unless such uses create immediate land use conflicts along project boundary lines.

b. Where the development is for single-family detached dwellings that meet all minimum requirements set forth in Chapter 20.12 (Density and Dimensional Standards) a detailed site development plan shall not be required.

c. Where the development is for single-family detached dwellings but does not meet the requirements set forth in Chapter 20.12 (Density and Dimensional Standards); or where the development proposes permitted uses other than single-family detached dwellings, a detailed site development plan shall be submitted in accordance with Chapter 20.04. Additional reasonable conditions may be recommended by the city plan commission and approved by the city council in order to protect the public health, safety and welfare.

B. Union Plaza (U-P).

1. Applicability. The provisions of this section will apply to all parcels of land within the "U-P" Union Plaza District.

2. Development Standards.

a. For mixed-use developments over 1 story in height, where residential and other uses are combined in a single building, residential uses may not occupy the ground floor, except where they comply with the design standards in the "2023 Union Plaza Architectural and Design Guidelines." In other multifamily dwelling buildings, not including commercial uses, residential uses may occupy the ground floor.

b. Off-Street Parking. Off-street parking requirements of Chapter 20.14 shall not apply to properties in the district. Additionally, surface parking lots shall be prohibited in the district.

c. Drive-thru facilities are prohibited in the district.

d. In the district, height limits of buildings or structures within a seven-hundred-foot radius of any part of the facade of the Union Depot shall not exceed forty feet.

3. Plans and Permits Required. Prior to the issuance of any building or related permits for any new construction or renovation of the exterior of existing building(s), drawings and applications shall be reviewed for approval by the city manager or designee, to ensure that the proposed construction complies with the architectural and design guidelines described in this section. Application shall be reviewed within ten business days upon receipt of a complete application. The city manager or designee may request assistance of other departments to review drawings and applications.

4. Architectural and Design Guidelines. The purpose of these guidelines is to protect the district from unsightly construction that would ultimately diminish the appeal of the district. All applications for redevelopment of existing buildings or structures or new construction must comply with the Union Plaza Architectural and Design Guidelines. Copies of the Union Plaza Architectural and Design Guidelines are on file in the planning and inspections department.

5. Application Requirements. In addition to those items required for the application for a building permit, a detailed site development plan is required prior to development within the district. The process for application and approval shall be in accordance with Title 20, Article III - Detailed Site Development Plan Approval Process. The requirement for a detailed site development plan shall only apply to new construction or additions to existing structures.

C. Planned Residential (PR-1 and PR-2).

1. Open Space and Recreation Area. The amount and arrangement of open space and recreation area should be in accord with the comprehensive plan and the purposes of the design of the development, including preservation of natural landscape, active recreation, passive recreation, and improvement of view as may be appropriate to a particular case. Both private and common use open space are to be encouraged. Open space proposed for common or general public access shall be so designated on the detailed site development plan and subdivision plat. Satisfactory provision shall be made for the maintenance of common open space in accordance with the procedure in Chapter 20.04.

2. Preservation of the Environment. In all P-R developments, the elements of natural environment, including existing vegetation, arroyos, flood-prone areas, mountains, steep slopes and other features, shall be considered in planning and design and layout of buildings, location of streets and preservation of open spaces, in order to further the preservation of the natural environment.

3. Perimeter Treatment.

a. The perimeter of the planned development shall be designed to insure compatibility with adjacent existing or potential development by provision of compatible uses and structures; masonry walls; and landscaping or other treatment.

b. A minimum setback of ten feet plus two additional feet of separation for each story above two shall be maintained between any structure and the outside boundary line of the planned residential development.

4. Review Standards for Establishment of P-R District.

a. The city plan commission and the city council shall review the conformity of the proposed

development or redevelopment with the comprehensive plan. The commission and the city council shall study the relationship between uses of high intensity permitted in the P-R district and uses of low intensity, existing or future, outside the proposed P-R district to ascertain compatibility, but shall not reduce the amount of such uses below the maximum established by this section unless such uses create immediate land use conflicts along project boundary lines.

b. Where the development is for single-family detached dwellings that meet all minimum requirements set forth in Chapter 20.12 (Density and Dimensional Standards) a detailed site development plan shall not be required.

c. Where the development is for single-family detached dwellings but does not meet the requirements set forth in Chapter 20.12 (Density and Dimensional Standards); or where the development proposes permitted uses other than single-family detached dwellings, a detailed site development shall be submitted in accordance with Chapter 20.04. Additional reasonable conditions may be recommended by the city plan commission and approved by the city council in order to protect the public health, safety and welfare.

D. Planned Commercial (P-C).

1. Ownership Control.

a. The land in a P-C district shall be developed as a unified whole. All owners shall be included as joint applicants and all approvals shall bind all owners.

b. A building or land shall be used only in accordance with an approved detailed site development plan conforming with Chapter 20.04 and only for the uses permitted in Chapter 20.08, provided that the district shall be planned and developed as a unit, subject to the additional requirements and provisions of this section.

2. General Procedures—Plans Required.

a. Establishment of a P-C planned commercial district shall follow the procedures for changes and amendments of Chapter 20.04, including notice and hearings, recommendations by the city plan commission and action by the city council. A detailed site development plan complying with the requirements of Chapter 20.04 shall be required.

b. If the project is to be accomplished as a series of development units, a detailed site development plan of a proposed unit shall be submitted with a general concept plan and a schedule of phasing provided.

c. The proposed development shall follow all applicable procedures, standards, and requirements of this chapter and other regulations governing the subdivision of land. Where a plat is required, no building permit shall be issued until a final plat of the proposed development, or part thereof, is approved by the city plan commission, filed and recorded.

3. Supplemental Height and Bulk Standards.

a. When a community or regional shopping center is a part of a planned development of one hundred fifty acres or more, or where there are unique features of topography, access, and location with respect to existing and future development to justify such action, the city plan commission may recommend and the city council may approve height limits for community and regional shopping centers in excess of those specified in Chapter 20.12.

b. The floor area ratio for a neighborhood shopping center or area shall not exceed 0.30. A maximum floor area ratio may be specified for community and regional shopping centers or general commercial areas as a condition of development permit approval.

4. Compatibility with Nearby Properties. The development shall be designed to promote harmonious relationships with surrounding adjacent and nearby properties, developed and undeveloped, particularly in larger centers or where tall buildings are to be located in the vicinity of buildings of low height, and to this end may employ such design techniques as may be appropriate to a particular site, including location of building, orientation, spacing and setback of buildings, location

of access points, size and location of signs, open spaces and parking areas, grading, landscaping and screening.

5. Access. The principal means of access shall be from arterial or collector streets. For a major shopping center, principal access shall be from at least one major arterial street. In no case shall the principal means of access be from a minor residential street. Access points shall be designed to minimize traffic hazard and congestion and shall be approved by the city engineer.

6. Internal Circulation. The design for internal circulation shall be appropriately related to access points and provide for safe and efficient movement of vehicles and pedestrians with special attention to reduction of crossing conflicts, improvement of visibility, convenience of pickup areas, traffic signs and speed controls.

7. Paved Areas. Service drives or other areas shall be provided for off-street loading and in such a way that in the process of loading or unloading, no truck will block the passage of other vehicles on the service drive or extend into any fire lane or other public or private drive or street used for traffic circulation. The drives, parking areas, loading areas, and walks shall be paved with hard, all-weather surface material meeting applicable specifications of Chapter 20.14.

8. Refuse. Refuse containers or refuse storage areas shall be hidden from general public view, either from within or outside the center, by means of fences, walls, or landscape planting.

9. Findings Required of City Plan Commission. Before recommending approval of a P-C planned commercial district, the plan commission shall make specific findings as follows:

a. That the location and design of the commercial areas are appropriate and are in compliance with the requirements and purpose of the P-C district, and specifically that there is adequate provision for traffic to and from the center, without undue congestion, on existing streets or on streets schedules to be completed by the time the center is to be opened;

b. That a proposed construction timing schedule has been approved by the commission and is recommended for adoption by the city council;

c. Specific conditions, if any, which should be imposed, including recommendations to insure construction of improvements.

10. Abandonment After Final Approval.

a. In the event that the detailed site development plan is approve by the city council and thereafter the applicant or his successor abandons said plan, or in the event the applicant or his successor fails to commence the development of a specific unit within four years after final approval has been granted, then such approval of the detailed site plan shall terminate and be deemed null and void unless such time period is extended by the city council upon recommendation by the city plan commission upon written application by the applicant or his successor.

b. Once terminated, a new detailed site development plan must be approved following the procedures of Chapter 20.04, including public hearing, prior to issuance of a building permit or permits for the project.

E. Planned Industrial (P-I).

1. Compatibility with Nearby Properties. The industrial development shall be designed to promote harmonious relationships with surrounding adjacent and nearby properties, developed and undeveloped, and to this end may employ such design techniques as may be appropriate to a particular case, including location of permitted elements, orientation, spacing and setback of buildings, maintenance of natural vegetation, location of access points, size and location of signs, open spaces and parking areas, grading, landscaping and services.

2. Enclosed Buildings. All uses shall be conducted within a completely enclosed building of permanent and durable construction, with no open storage of raw, in process, or finished material and supplies or waste material. Finished or semi-finished products manufactured on the premises may be stored in the open if screened from the street or other abutting property by a solid ma-

sonry wall not less than six feet or more than eight feet in height. This screening must be located behind any required landscaping. Screening may be waived by the city council where it is found the screening will not service the purpose of blocking the view from a street or from a more restrictive zoning district.

3. Parking. Adequate parking space shall be provided off the street for all employees and visitors to the building, if necessary, in excess of the minimum requirements of Chapter 20.14. No parking shall be permitted in the required front yard or within ten feet of the boundary of any residential district and no storage of materials, equipment, or products shall be permitted in any part of a required front yard.

4. Loading.

a. Off-street loading space for individual uses shall be provided in accord with the provisions of Chapter 20.14. Loading operations shall be conducted within a building or screened from general public view from a front street where possible, but may be conducted at the side or rear of buildings whether or not facing a street.

b. Where an industrial tract abuts railroad property containing a spur track on the rear or side property line, railroad loading docks or the building itself may extend to the property line for the purpose of receiving service from the railroad spur tracks.

5. Paved Areas. Service drives or other areas shall be provided for off-street loading and in such a way that in the process of loading or unloading, no truck will block the passage of other vehicles on the service drive or extend into any fire lane or other public or private drive or street used for traffic circulation. The drives, parking areas, loading areas, and walks shall be paved with hard, all-weather surface material meeting applicable specifications of Chapter 20.14.

F. Special Residential Revitalization (SRR).

1. This district is established in recognition that developments containing both residential and commercial uses can create an appealing and vital urban environment when carefully designed. Developments approved for this district shall be designed to eliminate potential use conflicts through creative design methods. The SRR district allows for mixing residential environments with workplaces and services. Development in the SRR district must accommodate transportation systems, surrounding environments and pedestrian movements.

2. District Boundaries. This district is created to maintain a compatible mix of residential and neighborhood commercial uses within the area known as South El Paso. For purposes of this section, South El Paso is defined as the area south of Paisano Drive, and lying between Santa Fe Street and Cotton Street. No applications for SRR zoning may be requested outside of South El Paso.

3. Off-street parking requirements found in Chapter 20.14 shall not apply in this district; loading spaces, however, shall be required to comply.

G. Residential, General and Industrial Mixed Use Districts (RMU, GMU and IMU). Uses permitted in a mixed-use development are as approved by city council through a master zoning plan. A mixed-use development may be authorized to encourage use schemes such as but not limited to, residential, entertainment, medical, and employment centers. The following principles and requirements shall apply to a mixed-use development and shall serve as the basis for approval of a master zoning plan.

1. General Design Principles. These design principles shall serve as guidelines only, and compliance with any guideline within a mixed-use development shall be determined on a case by case basis as part of the master zoning plan and mixed use development plan approval. It is not intended that every mixed-use development conform to all or any set number of the enumerated design guidelines.

a. Development Perspective.

i. That the natural infrastructure and visual character of the development area be retained as derived from existing topography, riparian corridors and other environmentally sensitive areas.

ii. That the development strategy utilized encourages infill and redevelopment in parity with new and existing neighborhoods.

iii. That proposed development contiguous to urban areas be organized as town centers and neighborhoods, and be integrated with the existing urban pattern.

iv. That proposed development noncontiguous to urban areas be organized in the pattern of an isolated community consisting of a complete town center serving the neighborhood(s).

v. That a mixture of housing types and densities be distributed throughout the mixed-use development.

vi. That transportation corridors be planned and reserved in coordination with land use patterns.

vii. That natural or man-made green corridors and open space areas be used to define and connect neighborhoods to other facilities within the development, and that these areas allow for connectivity outside of the development where feasible.

viii. That the development include a framework of transit, pedestrian and bicycle systems that provide alternatives to the automobile.

ix. That neighborhoods with town centers be the preferred pattern of development and that developments specializing in single use be discouraged.

x. That neighborhoods be compact, pedestrian-friendly, and mixed use.

xi. That ordinary activity of daily living occurs within walking distance of most dwellings.

xii. That interconnected networks of streets be designed to disperse and reduce the length of vehicle trips.

xiii. That within neighborhoods, a range of housing types and price levels be provided to accommodate people of diverse ages and incomes.

xiv. That appropriate building densities and land use be provided within walking distance of transit stops.

xv. That civic, institutional and commercial activity be embedded, and not isolated, in the development.

xvi. That a range of open space including parks, squares, and playgrounds be distributed within the development.

xvii. That a development have sufficient size to accommodate the mixed-use concentration of uses.

b. Building Perspective.

i. That buildings and landscaping contribute to the physical definition of streets as civic places.

ii. That the design of streets and buildings reinforce safe environments.

iii. That architecture and landscape design grow from local climate, topography, history and building practice.

iv. That public gathering spaces be provided in locations that reinforce community identity.

v. That the preservation and renewal of historic buildings be facilitated.

vi. That principal buildings and facades, where possible, be located parallel to the frontage line to encourage a community-friendly environment.

2. General Design Elements. A mixed-use development is characterized by any combination of the design elements described below. These design elements shall serve as guidelines only, and compliance with any design element within a mixed-use development shall be determined on a case-by-case basis as part of the master zoning plan and mixed-use development plan approval. It is not intended that every mixed-use development conform to all or any set number of the enumerated design elements.

a. Neighborhoods limited in size and oriented toward pedestrian activity.

b. A variety of housing types, jobs, shopping, services, and public facilities.

c. Residences, shops, workplaces, and other buildings interwoven within the neighborhood, all within close proximity.

d. A network of interconnecting streets and blocks that maintain respect for the natural landscape.

e. Natural features and undisturbed areas that are incorporated into the open space of the neighborhood.

f. A coordinated transportation system with a hierarchy of appropriately designed facilities for pedestrians, bicycles, public transit and automotive vehicles.

g. Well-configured squares, plazas, greens, landscaped streets, preserves, greenbelts, or parks dedicated to the collective social activity, recreation, and visual enjoyment of the neighborhood.

h. Buildings, spaces, and other features that act as landmarks, symbols, and focal points for community identity.

i. Compatibility of buildings and other improvements as determined by their arrangement, bulk, form, character and landscaping to establish a livable and harmonious environment.

j. Classification of uses deploying a range from rural-to-urban to arrange in useful order the typical context groupings of natural and urban areas to ensure compatibility of land uses.

3. Architectural Objectives. As part of the review of the mixed-use development plan the architectural design shall achieve the following objectives:

a. Architectural compatibility;

b. Human scale design;

c. Integration of uses;

d. Encouragement of pedestrian activity;

e. Buildings that relate to and are oriented toward the street and surrounding buildings;

f. Residential scale buildings in any mixed residential area;

g. Buildings that contain special architectural features to signify entrances to the mixed-use development; and

h. Buildings that focus activity on a neighborhood open space, square or plaza.

4. Roadway Design. The roadway designs, whether public or private, used within a mixed-use development may vary depending on the proposed function of the roadway, the anticipated land uses, and the anticipated traffic load. A variety of designs to lend character to the neighborhood are encouraged. The requirements of Title 19 (Subdivisions) of this Code shall apply in all instances.

5. Parking. The off-street parking requirements in Chapter 20.14 (Off-Street Parking and Loading Requirements) of this title shall apply for purposes of calculating required spaces.

Community-parking facilities or shared parking shall be encouraged in lieu of traditional off-street parking design. This concept would permit the collocation of required parking for individual uses in order to promote pedestrian activity within the neighborhood. In instances where shared parking is proposed, a shared parking study shall be reviewed by the city along with any traffic engineering and planning data that are appropriate to the establishment of parking requirements for the uses proposed. A shared parking study shall include, but not be limited to, estimates of parking requirements based on recommendations in studies such as those from the Urban Land Institute, the Institute of Traffic Engineers, or the Traffic Institute, and based on data collected from uses or combinations of uses that are the same or comparable to the proposed uses. The shared parking analysis shall be based on the mixture of uses and corresponding peak demand for all uses. The study shall document the source of data used to develop recommendations.

6. Setbacks. Properties within a mixed-use development shall be allowed zero setbacks for all uses, unless otherwise required by the city council as part of the review of the master zoning plan.

7. Landscaping. Uses within a mixed-use development shall not be required to conform to the landscaping requirements of Title 18 (Building and Construction) of the El Paso City Code. Landscaping, streetscape, and other green areas proposed within the mixed-use development shall be shown and considered as part of the master zoning plan and mixed-use development plan approval process. (Ord. 16915 § 4, 2008; Ord. 16653 § 2 (part), 2007)

(Ord. No. 17442, § 20, 10-26-2010; Ord. No. 17801, § 4, 6-5-2012, eff. 6-11-2012; Ord. No. 19244, § 14, 10-12-2021; Ord. No. 019578, § 4, 12-12-2023)

20.10.365 Mobile service units.

A. Mobile service activities may be conducted only on approved parking surfaces, in zoning districts where the defined use is permitted.

B. An operator permit shall be required for each company providing mobile services. The permit shall be for a period of one year and the fee shall be as established by city council. A renewal application must be filed with the permit official thirty days prior to the expiration of the current permit. All operator permit applications meeting code requirements shall be approved within fifteen days of receipt.

C. The permit application shall include submittal of specifications of the mobile unit and a written authorization form signed by the property owner for each proposed location.

D. No part of the mobile service unit shall be located nearer than seventy-five feet from a residentially-zoned district.

E. The mobile service unit shall not operate in a manner which:

1. Obstructs on-site circulation, visibility or convenient ingress and egress;

2. Subjects the occupants of adjacent buildings to unacceptable noise levels; or

3. Deposits on the parking lot surface any toxic, hazardous and/or nonbiodegradable materials of any type.

F. All fluids collected from any vehicle must be disposed of in compliance with federal, state and local laws.

G. All equipment utilized by the mobile unit shall be mounted on, carried or transported by a self-powered vehicle.

H. No mobile service activities shall be conducted on city streets or rights-of-way.

I. In addition to other penalties imposed by the city code, any violation of the ordinance codified in this section or other applicable laws, codes or regulations shall subject the holder to suspension or revocation of their permit.

J. Sales and service shall only be permitted on private parking lots, occupied by a single owner. Sales to the general public and sales other than to fleets of vehicles are expressly prohibited. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17235, § 3, 11-10-2009; Ord. No. 17442, § 21, 10-26-2010)

20.10.370 Mountain development.

A. Purpose. The purpose of these regulations is to promote the following city objectives within mountain development areas:

1. To protect significant natural features of the mountain development area and preserve the city's unique visual setting as part of the comprehensive plan;

2. To provide an alternative approach to conventional flat land development by allowing transfer of residential densities through clustering of dwellings in order to preserve larger areas of open space;

3. To minimize scarring and disturbances of the natural character of the mountain development area through control of grading and cut/fill operations as defined in the grading ordinance;

4. To control water runoff and soil erosion;

5. To provide a safe means of ingress and egress for vehicular and pedestrian traffic to and within the mountain development area;

6. To encourage sound engineering practices related to mountain development.

B. Minimum District Area. The minimum area for a mountain development district where common or public open space is to be provided shall be one acre. Extensions to the original district, from a common boundary, may be considered in increments of less than one acre, provided, however, that all other requirements are observed.

C. Ownership Control. Where required, the common open space shall be owned by an incorporated or unincorporated association to assure that it will be permanently maintained in its natural state. Open space may be made public if dedicated or transferred in trust to the city and the city council accepts such dedication or transfer without affecting any other provision of this title.

D. Density Permitted. The maximum dwelling units per gross acre shall be calculated based on the percentage average slope of the property as follows:

Percent Average Slope	Maximum Density per Gross Acre
0 to 5	7.0
5.1 to 10	6.0
10.1 to 15	5.0
15.1 to 20	4.0
20.1 to 25	3.0
25.1 to 30	2.5
30.1 to 35	2.0
35.1 to 40	1.5
40.1 or more	1.0

E. Open Space Required. To retain the significant natural features of the mountain development area, common, public or private open space, or a combination thereof, shall be provided as part of a proposed development. The minimum amount of open space to be provided shall be based on the percent average slope of the property as shown below. The required open space within a mountain development district shall be shown on the subdivision plat and detailed site plan.

Percent Average Slope	Open Space Required/Percent of Total Gross Acreage to Remain Percent Average Slope Undisturbed
0 to 5	20
5.1 to 10	25
10.1 to 15	30
15.1 to 20	35
20.1 to 25	40
25.1 to 30	45
30.1 to 35	50
35.1 to 40	55
40.1 or more	60

F. Architectural Design Standards. Building and construction materials within a mountain development district shall meet the following architectural design standards:

1. Mirrored surfaces or any treatments that change ordinary glass into a mirrored surface shall be prohibited;

2. Bright untarnished copper or other metallic surfaces shall be treated to reduce reflections;

3. Materials used for exterior surfaces of all structures shall blend in color, hue, and tone with the surrounding natural desert setting to avoid high contrast;

4. Development design and construction techniques shall blend scale, form and visual character into the natural landform, and shall minimize exposed scars;

5. Exterior lighting shall be low scale and directed downward, recessed, or shielded so that the light source is not visible from the adjacent developments;

6. Reflective building materials shall be prohibited;

7. No exterior paint colors shall be used which have a light-reflecting value (LRV) greater than forty percent. (The LRV of a paint is available from paint manufacturers and it measures the amount of light reflected by a certain color.)

G. Property Development Standards. The following property development standards shall apply to all land, buildings and structures within a mountain development district:

1. Subdivision Plat. Buildings and structures in a mountain development district shall be erected only on land where a plat or replat approved by the city plan commission, has been filed of record, and indicates compliance with the provisions of this section. Each attached or detached single-family dwelling must be platted on an individual lot prior to issuance of occupancy permits;

2. Site Plan. A detailed site development plan complying with all of the requirements of Chapter 20.04 (Administrative Review Procedures) shall be required for all property within a mountain development district, except where a development is for single-family detached dwellings meeting the minimum yard requirements of Chapter 20.12 (Density and Dimensional Regulations) and where common or public open space is provided to satisfy the open space requirements of this section. If a development is to be undertaken in a series of phases, a development schedule indicating the proposed phasing shall accompany the required detailed site plan;

3. Common or Public Open Space. Where required, the total amount and distribution of common or public open space shall be shown on the detailed site development plan and subdivision plat and shall be expressed as the percent of the site which will remain in its natural state. Satisfactory provisions for assuring continued retention of the common or public open space shall be provided;

4. Percent Slope. The percent slope of a proposed mountain development used to determine

the common open space shall be shown on the required detailed site development plan and subdivision plat;

5. Perimeter Treatment. The perimeter treatment of the proposed mountain development shall be designed to insure compatibility with adjacent existing or potential development by provision of compatible land uses and structures. A minimum setback of ten feet of separation for each story or fraction thereof shall be maintained between any structure and the outside boundary of the proposed mountain development.

H. Private Streets. Where authorized by the city plan commission in approving a subdivision plat, streets may be privately owned.

I. Preservation of the Environment. In all mountain developments, existing vegetation, animal life, arroyos, floodprone areas, steep slopes, and other natural features shall be considered in the planning, design and layout of buildings, service areas and location of streets in the allocation of open spaces reserve the natural environment.

J. Right-of-Way and Pavement Widths. The right-of-way and pavement widths for internal ways, streets and alleys within and adjacent to the proposed mountain development shall be:

1. Determined from the standards contained in the city's current subdivision regulations and any applicable ordinance governing streets;

2. In conformity with the estimated needs of the entire mountain development and the traffic to be generated thereby;

3. Adequate and sufficient in size, location and design to accommodate the maximum traffic, parking, loading needs and the access for firefighting equipment vehicles while preventing undue scarring and grading.

K. Off-Street Parking and Loading. The minimum requirements for off-street parking and loading shall be satisfied as set forth in Chapter 20.14 (Off-Street Parking and Loading Regulations).

L. Utilities and Public Services. Every mountain development shall be adequately served by essential utilities and public services such as water, sanitary sewer, storm drainage, police, fire and other similar services.

M. Property Grading Standards. Grading in a mountain development shall be in accordance with Chapter 18.44 (Grading) of this Code. (Ord. 16905 § 1, 2008; Ord. 16653 § 2 (part), 2007)
(Ord. No. 19244, § 15, 10-12-2021)

20.10.380 Reserved.

Editor's note—Ord. No. 019734, § 3, 5-28-2025, repealed § 20.10.380, which pertained to multifamily dwellings and derived from Ord. 16653 § 2 (part), adopted 2007.

20.10.385 Natural open space.

A. Purpose. The purpose of these regulations is to promote the following city objectives within the mountain, hillside, arroyo, bosque, and desert flatland areas, as well as other natural open space areas:

1. To protect and promote ecologically sensitive areas in conformance with the goals and policies of the city's comprehensive plan and open space master plan;

2. To minimize scarring and disturbance of the natural environment, plant and wildlife habitat and visual character of the mountain, hillside, arroyo, bosque, and desert flatland areas through prohibition of development;

3. To control water runoff and soil erosion and to assure continuation of the existing natural drainage system;

4. To preserve land that, if disturbed, may be susceptible to flooding and soil erosion due to steep slopes and runoff;

5. To provide a safe means of ingress and egress for non-motorized traffic to and within the mountain, hillside, arroyo, bosque, and desert flatland areas;

6. To create a separate district that may be used as a buffer from military land and other land uses;

7. To assure the permanent use of such areas for their primary natural function, as well as for enjoyment by the general public.

B. Property development standards. The following land uses and property development standards shall apply to land zoned as NOS.

1. Before land owned by the city and managed and controlled by the public service board is rezoned to NOS, the city and the public service board shall enter into a joint use agreement specifying the duties and responsibilities for the maintenance of the open space and the management of the passive recreational uses permitted within the area rezoned to NOS.

2. Refer to Section 20.08 for uses permitted within the NOS zoning district. The uses specified below shall have additional restrictions:

a. Stormwater retention ponds are permitted but shall be restricted to public facilities only and shall be built in compliance with best practices in low impact design. Additionally, the following standards shall apply:

i. Grading shall not result in excessive erosion or degrade natural drainage paths or create irreparable scarring and shall be limited to the minimum possible disturbance of terrain and natural land features that are necessary to construct the drainage infrastructure.

ii. Upon completion of the drainage infrastructure, the area surrounding the infrastructure shall be revegetated through the replanting of appropriate native, non-invasive, adaptive and drought tolerant vegetation.

iii. Road access, work areas and grading for such access shall be constructed in compliance with best practices in low impact design.

b. Campgrounds shall be restricted as follows:

i. Permitted camping units shall be restricted to tents only;

ii. Access to campsites shall be limited to walking, hiking or other non-motorized means, except that such campgrounds may contain service roads for maintenance of campground facilities.

3. Walls. Refer to Chapter 20.16 (Screening and Fencing) for applicable standards pertaining to walls and fencing.

4. Parking. Off-street parking surfaces shall be constructed of pervious surfaces that may include dirt or gravel. Parking shall be provided in accordance with the approved generalized or detailed site development plan.

5. Site plan. At a minimum, approval of a generalized site plan shall be required for all proposed uses permitted in an NOS district; refer to Section 20.08 for additional site plan requirements by use. In addition to compliance with applicable requirements of this Title, the site plan shall include the following:

a. General features or concept of the proposed use;

b. Location of all impervious surfaces, structures, utilities and associated parking, as well as all areas that will be disturbed by the construction of a permitted use;

c. All areas that shall remain in their natural state;

d. For applications requiring the submittal of a detailed site development plan, only areas being improved shall require illustration of stormwater drainage elements.

6. Signs.

a. On-premises signs shall be permitted; these signs shall comply with all regulations and permitting procedures as codified in Section 20.18 (Signs).

b. Wayfinding signs including, but not limited to, trailhead kiosks, interpretive signs and trail markers may be permitted after review and approval by the city manager or designee.

7. Wildlife sanctuary. For purposes of this section, wildlife sanctuaries shall include areas designated as such by local, state or federal documentation. If governmental documentation cannot be produced with an environmentally sensitive designation that meets the following criteria, then the city manager or designee may evaluate the property and determine if it meets one or more of the following characteristics. If the city manager or designee determines it is not an environmentally sensitive area as defined herein a special permit application may not be processed.

a. Areas with significant natural features;

b. Areas which enhance the open space and aesthetic qualities of the land;

c. Areas that protect agricultural resources;

d. Areas necessary for the preservation of natural resources;

e. Areas containing habitats for breeding, wintering, migratory, threatened, or endangered species;

f. Wetlands and wetland transition areas;

g. Aquifer recharge and discharge areas;

h. Archaeological sites;

i. Waters of the state, which includes arroyos; or

j. Other areas or features that have been designated for protection due to ecological integrity, balance or character.

8. Landscape treatments.

a. Permitted uses within this district shall not be required to conform to the landscaping requirements of Title 18 (Building and Construction) of the El Paso City Code. Landscaping, streetscape, and other green areas proposed within the development shall be shown and considered as part of the site plan approval process.

b. Impervious surfaces, structures, utilities and associated parking constructed as shown on the approved generalized site plan or other site plan, as required by Section 20.08, shall be exempt from re-vegetation requirements.

C. Incentives.

1. Applications under this section shall be expedited as follows:

a. Processing for NOS development plans not requiring city council approval: thirty days;

b. Processing for an NOS rezoning application, detailed site development plan or other application that requires city council approval: approximately sixty days (minimum) for final approval.

2. The city shall waive application fees for rezoning, detailed site development plans, and any major or minor amendment applications.

(Ord. No. 17306, § 4, 4-6-2010; Ord. No. 17442, § 22, 10-26-2010; Ord. No. 17490, 1-25-2011; Ord. No. 18531, § 5, 6-28-2016)

20.10.390 Reserved.

Editor's note—Ord. No. 019734, § 3, 5-28-2025, repealed § 20.10.390, which pertained to neighborhood commercial uses (SRR district) and derived from Ord. 16653 § 2 (part), adopted 2007.

20.10.400 Neighborhood conservancy overlay.

A. Purpose. The purpose of a neighborhood conservancy overlay (NCO) is to regulate the construction, reconstruction, renovation and alteration of buildings and other structures in designated places and areas of historic, cultural, or architectural importance and significance within the city. These designated places and areas have a distinctive atmosphere or character and should be conserved through regulations that protect and enhance their significant attributes. The designation has the effect of modifying the existing development standards of the district by requiring owners of property to comply with additional reasonable design standards as part of building construction within a neighborhood. The design standards are intended to promote the conservation of the neighborhood attributes and thereby contributing to the stability or stabilization of the neighborhood. All properties within an NCO will carry the suffix "NCO," indicating that such property is subject to the design standards of both the designated zoning district and the NCO. An NCO designation shall not prohibit the use of a property that is otherwise permitted by the existing zoning.

B. Designation.

1. An application for an NCO designation may be initiated either by a property owner or group of property owners, or by the city plan commission, or by the El Paso City Council. No NCO shall be designated and approved by the El Paso City Council if owners of more than fifty-one percent of the total land area within a neighborhood described in the application object in writing to the designation. Signatures of the property owners evidencing their dissent must be submitted prior to approval by the El Paso City Council of an ordinance designating an NCO.

2. The area described in the application shall include at least one block face. For purposes of

this section, a block face shall be defined as a parcel of land entirely surrounded by public highways, streets, or alleys.

C. Application. An application for an NCO designation shall be subject to the requirements and procedures of Chapter 20.04, and shall also be accompanied with all of the following:

1. A list of all neighborhood associations and/or other organizations representing the interests of the property owners in the area described in the application;

2. A written justification which supports the requested NCO designation. The justification must contain a detailed statement of why such a designation would be in the best interest of the city as a whole, and a description of the attributes of the area which merit conservation.

D. Study area plan formulation and adoption. Prior to application for an NCO, the city shall have adopted a specific study area plan, as required by "The Plan for El Paso," for property within a neighborhood wholly or partially to be designated for mixed-use. The study area plan shall, at a minimum, include a written and graphic description of the concerns, policy objectives, guidelines and design standards for regulating the development of the area. The city development department shall, upon authorization and prioritization by the El Paso City Council, assist area residents and other interested parties to prepare a study area plan, and when completed shall be on file in the department. Any NCO designation approved by the city shall incorporate the study area plan by express reference.

E. City review committee.

1. A city review committee (CRC) shall be created to oversee the functions within each area designated an NCO. The CRC shall have the power and authority to review and authorize the release of building permits for any new construction, reconstruction or renovation of the exterior of existing buildings or structures within a designated NCO. The building official shall forward all applicable building permit applications to the CRC.

2. Members of the CRC shall consist of the planning official, the building official and the historic preservation officer (or their respective designees). The planning official shall act as secretary

of the committee. For quorum purposes, presence of all members of the CRC shall be required to convene a meeting and vote on any permit. Meetings shall be scheduled, with notice duly posted according to the Texas Open Meetings Law, by the secretary as necessary to review and act on permit applications. Written notice of any permit application received and pending action before the CRC shall be given, as a minimum, to any area neighborhood associations and to the immediate abutting property owners within the NCO area. The notice shall state the date and time of the scheduled meeting before the CRC.

3. The secretary shall make and maintain a detailed record of all proceedings and procedures of the CRC, setting forth the reasons for each decision, the vote of each member participating therein, and any failure of a member to vote. Action taken at a CRC meeting shall require the affirmative vote of a majority of the members present at the meeting. The CRC shall, in every case, reach a decision without unreasonable delay.

4. All decisions of the CRC shall be reasonable under the circumstances and shall not be arbitrary or capricious. If the CRC has not disapproved an application for a building permit within twenty days after it has been properly submitted then such application shall be deemed to have been approved without further action of the CRC. All decisions shall be in writing and shall be served on the applicant by the United States Mail, postage prepaid, return receipt requested, and shall be deemed given when deposited in the United States Mail.

F. Contents of application, scope of review, waivers, and fees.

1. Prior to the issuance of any building permits for any new construction, reconstruction or renovation of the exterior of existing buildings on property (or any portion thereof) with an NCO designation, drawings and applications shall be reviewed by the CRC to determine if the proposed new construction, reconstruction or renovation complies with the design standards of the specific study area plan.

2. The CRC shall establish and publish a detailed list of the documents and information that must be submitted by an applicant together with the application for a building permit, copies of which shall be maintained as directed by the city manager or designee. All applications for building permits on property with an NCO designation shall comply with the required design standards for the applicable study area plan. Approval of a permit shall indicate that the proposed construction complies with the requirements of this section and the design standards of the specific study area plan. The CRC may request assistance of other city departments to review drawings and applications. In the event that the design standards of the applicable study area plan are more restrictive or impose higher (or different) standards than the requirements of this title, the design standards of the applicable study area plan shall govern.

3. The standard fee for an application which requires review by the city review committee (CRC) shall be as established in the annual budget resolution approved by city council.

G. Appeals of CRC Actions. Decisions of the CRC on any building permit application may be appealed to the city plan commission within fifteen calendar days after the decision is rendered by the CRC. The applicant, or an owner of a building or structure located within the designated NCO, and aggrieved by the decision of the CRC may file an appeal. The appeal shall be filed in writing with the secretary and shall be accompanied by the fee approved by city council in the annual budget resolution and a reasonably detailed statement of which design standard is not met in the application for a building permit with sufficient evidence to warrant the appeal. Evidence may include, but is not limited to:

1. A demonstration that the intent of a design standard has been misconstrued or incorrectly interpreted;

2. Relevant evidence was not considered by the CRC in making its decision;

3. The alternate design is at least equivalent of that prescribed in terms of quality, effectiveness and aesthetics;

4. Written notice of any appeal filed shall be given, as a minimum, to any area neighborhood associations and to the immediate abutting property owners within the NCO area. The notice shall state the date and time of the scheduled meeting before the city plan commission;

5. In exercising its powers, the city plan commission may reverse or affirm, in whole or in part, or may modify the requirement, decision or determination appealed from a decision of the CRC. The city plan commission shall be authorized to impose any necessary conditions or safeguards to ensure that the purpose and intent of these regulations is satisfied. The grant of an appeal to a requirement pursuant to this section shall not be construed as a waiver of any other requirement of this section. Modifications concerning use shall never be permitted under any circumstances. Any decision of the city plan commission on an appeal as provided in this section shall be final;

6. An application for appeal shall be on forms prescribed by the planning division, and shall be accompanied by a fee set by resolution or ordinance of the El Paso City Council to help defray the cost of publication and general expenses in connection with the appeal. All decisions shall be in writing and shall be served on the applicant by the United States Mail, postage prepaid, return receipt requested, and shall be deemed given when deposited in the United States Mail.

H. Plan Review Not Required. For purposes of this section, review and authorization to release building permit applications for the new construction, reconstruction, or renovation of the exterior of buildings within an approved NCO shall not be required for ordinary minor nonstructural repair work having a value of two thousand dollars or less. (Ord. 16761 § 1 (part), 2007; Ord. 16653 § 2 (part), 2007)

(Ord. No. 17442, § 23, 10-26-2010; Ord. No. 17801, § 5, 6-5-2012, eff. 6-11-2012; Ord. No. 19085, §§ 1, 2, 8-18-2020)

20.10.405 Environmental and wildlife research conservancy overlay.

A. Purpose.

1. The purpose of an Environmental and Wildlife Research Conservancy Overlay (EWRCO) is to conserve, protect, manage, restore, or enhance areas that have a distinctive environmental, cultural, natural or wildlife character or attributes through the application of regulatory standards that protect and enhance those specified character and attributes. The designation has the effect of modifying the existing land use and development standards of the base zoning district of the land within the overlay by requiring owners of property to comply with additional reasonable land use and design standards. The adopted land use and development standards are intended to contribute towards the stability or stabilization of the property while allowing compatible research, educational and recreational activity within the property.

2. Development standards such as height, setbacks, and allowed land uses shall be specified by the study area plan of the managing entity adopting the EWRCO overlay. All properties within an EWRCO will carry the suffix "EWRCO," indicating that such property is subject to the land use and design standards of the EWRCO. Any land uses specified under the underlying base zoning districts will not be allowed unless specified in the ordinance adopting the overlay.

B. Designation.

1. An application for an EWRCO designation may be initiated either by a property owner or group of property owners. No EWRCO shall be designated and approved by the El Paso City Council unless all property owners of the total land area proposed for the overlay agree to the designation.

C. Application. An application for an EWRCO designation shall be subject to the requirements and procedures of Chapter 20.04, and shall also be accompanied with all of the following:

1. A list of all the property owners in the area described in the application;

2. A written justification which supports the requested EWRCO designation. The justification must contain a detailed statement of why such a designation would be in the best interest of the city as a whole, and a description of the attributes of the area which merit conservation.

D. Study area plan formulation and adoption. Prior to approval for an EWRCO, the city shall have adopted a specific study area plan, as required by "The Plan for El Paso," for property within the proposed EWRCO. The study area plan shall, at a minimum, include a written and graphic description of the concerns, policy objectives, guidelines and design standards for regulating the development of the area. The planning and economic development department may, upon authorization of the city manager, assist the property owners and other interested parties to prepare a study area plan, and when completed shall be on file in the department. Any EWRCO designation approved by the city shall incorporate the study area plan by express reference.

E. Contents of application, scope of review, waivers.

1. Prior to the issuance of any building permits for any new construction, reconstruction or renovation of the exterior of existing buildings on property (or any portion thereof) with an EWRCO designation, drawings and applications shall be reviewed by the planning division to determine if the proposed new construction, reconstruction or renovation complies with the design standards of the specific study area plan.

2. All applications for building permits on property with an EWRCO designation shall comply with the required design standards for the applicable study area plan. Approval of a permit shall indicate that the proposed construction complies with the requirements of this section and the design standards of the specific study area plan. (Ord. No. 17776, § 2, 5-1-2012)

20.10.410 Off-street parking (serving another property).

A. Any otherwise permitted use for which the off-street parking requirements of Chapter 20.14 are to be satisfied by off-street parking spaces on property which is located on a separate site from the property requiring the off-street parking spaces, and for which the following can be demonstrated:

1. The parking area is compatible with the general development of the neighborhood and does not adversely affect the use of adjacent properties;

2. The parking area is so arranged as to permit sufficient space for parking spaces and turning maneuvers, as well as adequate ingress and egress to the site;

3. Lighting shall comply with Chapter 18.18 (Dark Sky Ordinance) of this Code;

4. The parking area is located in such a manner from the site generating the parking requirement to assure that such parking facility will adequately serve the use;

5. Access to be provided to the parking area shall not be through private property that is not zoned to permit the use generating the off-street parking;

6. Adequate provisions shall be made to assure that the parking area is reasonably identifiable as to the patronage it serves, the location, points of access, hours of operation and other appropriate matters made as a condition of the special permit approval;

7. The parking spaces required to be provided for the use shall be restricted to that use;

8. Any off-street parking spaces to be provided on the site generating the off-street parking requirement shall be used to accommodate required handicapped accessible spaces and patron parking;

9. The parking area shall be owned or leased by the same property owner who operates the use generating the off-street parking requirement, and any leasehold interest in the parking area shall be validly held for the duration of the use.

B. Off-street parking spaces serving another property which are located partially or totally on a separate site from the property requiring the off-street parking spaces. (Ord. 16653 § 2 (part), 2007)

20.10.420 Office warehouse.

Where permitted in a zoning district, an office warehouse shall be subject to the following:

A. The facility shall include a combined use of either an office or office showroom and a warehouse for the distribution of products;

B. The office showroom component shall mean that portion of this use that provides area for the regular transaction of business and for the display of open merchandise in a finished building setting;

C. An office component of this use must comprise at least ten percent of the total floor area of the use, and an office showroom component of this use must comprise at least fifteen percent of the total floor area of the use;

D. Retail sales of products which are sold at wholesale on the premises is permitted as a part of this use. (Ord. 16653 § 2 (part), 2007)

20.10.430 Outdoor flea markets.

A. Compliance Required. Where permitted in a district, outdoor flea markets shall comply with the following:

1. One vendor off-street parking space and one customer off-street parking space shall be provided per stall/space. Each off-street parking space shall meet the minimum requirements of Chapter 20.14 (Off-Street Parking and Loading Regulations) of this title;

2. Site area to be paved with asphalt, cement or other dust-free surface;

3. A six-foot high wall or fence, consisting of three-feet in masonry material and three-feet in wrought iron material, shall be required around the perimeter of that portion of the site being used for the operation and use of an outdoor flea market. A waiver of this requirement may be requested pursuant to the provisions of Chapter 20.04 (Administrative Procedures) of this title;

4. Each vendor stall/space shall provide at least one covered garbage container, a minimum five-gallon garbage container shall be required for each food vendor;

5. One sanitary portable facility shall be provided for every twenty-five vendor stalls/spaces, or portion thereof, or the number of fixed sanitary facilities required by the Plumbing Code for the city based on the site area;

6. The operator shall be responsible for maintaining the site area to insure compliance with applicable portions of this Code;

7. A ten-foot pedestrian walkway shall be provided between each row of vendor stalls/spaces;

8. A twenty-foot fire accessway shall be provided within the site area where required by the fire chief;

9. A minimum clear area of all sides (distance) of five feet shall be provided between a food vendor (utilizing cooking or heating facilities) stall/space and any other adjoining nonfood vendor stall/space, unless otherwise approved by the fire chief;

10. Only natural gas or liquefied petroleum gas shall be allowed for food cooking units, unless otherwise approved by the fire chief, on a case by case inspection, other cooking appliances that meet code may be approved;

11. A nonflammable shelter shall be required for all food cooking units;

12. At least one 2A10BC fire extinguisher shall be required for all food cooking units;

13. No parking or structures shall be allowed within the required setback, pedestrian walkways or fire accessway;

14. Signage for the flea market activity shall be restricted to that allowed in the applicable zoning district;

15. The noise levels of the flea market activity shall not exceed those specified in Chapter 9.40 of this Code. No outside amplification devices shall be permitted in conjunction with the flea market operation when the site is adjacent to any property that is used for residential purposes;

16. The operator shall be responsible for maintaining the property and abutting sidewalks, parkways and street gutters from accumulations of waste, and shall be subject to all applicable health and safety provisions of this Code.

B. Operator license. An operator license or the operation of an outdoor flea market shall be required and be subject to the requirements of Title 5 (Business taxes, licenses and regulations), of this Code. Application for a license shall be made pursuant to the requirements of Title 5. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17442, § 24, 10-26-2010)

20.10.440 Pasturage.

Where permitted in a district, pasturage of horses, cattle, goats and sheep, including breeding, must additionally comply with Title 7 of this Code. (Ord. 16653 § 2 (part), 2007)

20.10.450 Personal care facilities.

Personal care facilities operated in a residential zoning district shall comply with the following:

1. Be licensed in accordance with state and/or city regulations;

2. Permitted signs shall be limited to a one square foot nameplate attached to and not projecting more than one inch beyond the face of the building. The nameplate shall contain only the name and occupation of the provider;

3. The exterior of the building or grounds shall not be altered, decorated or painted in any way to distract from the residential character of the neighborhood;

4. A minimum of one off-street parking space shall be provided for every two bedrooms or portion thereof, and for every two employees or portion thereof. (Ord. 16817 § 6, 2008; Ord. 16653 § 2 (part), 2007)
(Ord. No. 17577, § 8, 7-7-2011)

20.10.455 Personal wireless service facilities.

A. All PWSF permitted in accordance with this chapter, may be constructed within the corporate limits of the city and shall be constructed and operated in accordance with industry standards and subject to the restrictions and limitations set forth in this chapter and in the adopted PWSF policy guide. The director of planning and inspections department, or other person designated by the city manager, is authorized to adopt and amend the PWSF policy guide to provide clarifications to requirements established under this title regarding the placement and construction of PWSFs. The policy guide shall control the interpretation of the provisions of this title regarding the placement and construction of PWSFs over any other interpretation. The director shall make the PWSF policy guide available to the public.

B. Certification. All owners of PWSF currently in existence as of the date of the passage of the ordinance codified in this chapter shall certify in writing, no later than thirty days after the passage of the ordinance codified in this chapter, to the building official that the PWSF in existence are not a safety hazard to the public, and are in operable condition, as well as provide an address of the location of each PWSF and any other pertinent information, excluding proprietary information, required on the form prescribed by the development services department.

Thereafter, for all such PWSF and additionally for all new PWSF installed and constructed after the date of passage by the ordinance codified and permitted in accordance with this chapter, the owner shall certify in writing, annually no later than January 31, beginning in 2008, to the building official that the PWSF in existence are not a safety hazard to the public, and are in operable condition, as well as provide an address of the location of the PWSF, and any other pertinent information, excluding proprietary information, required on the form prescribed by the building official.

The person who constructed the PWSF, the person who operated the PWSF or the owner of record must notify the zoning administrator of any change in the information or status of the PWSF as stated in the certification within thirty days after such change.

C. Removal. For any PWSF constructed after the date of this chapter, if the PWSF is not used to transmit, receive or relay voice and data signals to or from wireless communication devices

for a period of six months, then the owner of record must notify the building official and apply for a permit to remove the structure. All PWSF towers and antennas shall be restored to service or removed by the person who constructed the facility, by the person who operated the facility or by the property owner within eighteen months from the time the PWSF ceased being used to transmit, receive or relay voice and data signals to or from wireless communication devices.

If the use of the PWSF has not been restored within an eighteen-month period from the time the PWSF have ceased being used to transmit, receive or relay voice and data signals to or from wireless communication devices, the PWSF must be removed and the PWSF site restored to its original or better condition, at the property owner's expense.

For any PWSF in existence but not listed as operable on the certification form as of the date of the passage of the ordinance codified in this chapter, the owner shall have eighteen months from the date of certification in which the PWSF must be made operable. If the PWSF is not operable within eighteen months, then the owner of record must notify the building official and apply for a permit to remove the structure. All PWSF towers and antennas shall be removed by the person who constructed the facility, by the person who operated the facility or by the property owner within six months after the aforementioned time period expires. The PWSF site must be restored to its original or better condition, at the property owner's expense.

D. Proposed PWSF Facility Site Location and Zoning District Location Hierarchy Preferences.

1. The following list indicates the city's preferences for facility site locations, in descending order of preference. Subject to all other requirements of the El Paso City Code and provided the City Code allows for such location, applicants are not prohibited from applying for any type of facility site location listed below. If applicant is seeking a permit for a facility site location listed under Sections 20.10.455(D)(1)(a)(ii) to 20.10.455(D)(1)(e) below, then the applicant will submit with the application a due diligence analysis. At a minimum, the due diligence analysis must contain the following: a map showing all facility site locations considered within five hundred feet of the proposed location that are higher on the preference list and a narrative explaining why the other facility site locations higher on the preference list are not feasible. City staff shall accept a due diligence analysis for facility site locations if such complies with the requirements above. Applications submitted by an applicant must still comply with all other requirements under the El Paso City Code. The following is the list of facility site location preferences:

a. Antennae co-location on existing camouflaged PWSF:

i. Facility;

ii. Roof;

iii. Ground-mounted;

b. Antennae co-location on existing PWSF:

i. Facility;

ii. Roof;

iii. Ground-mounted;

c. New facility-mounted PWSF, meeting applicable camouflaging and screening requirements;

d. New roof-mounted PWSF, meeting applicable camouflaging and screening requirements;

e. New ground-mounted PWSF, meeting applicable camouflaging and screening requirements.

2. The following list indicates the city's preferences for zoning district locations, in descending order of preference. Subject to all other requirements of the El Paso City Code and provided the City Code allows for such location, applicants are not prohibited from applying to locate any facility in any zoning district location listed below. If applicant is seeking a permit to locate a facility on a zoning district listed under Sections 20.10.455(D)(2)(b) to 20.10.455(D)(2)(c) below, then the applicant will submit with the application a due diligence analysis. At a minimum, the due diligence analysis must contain the following: a map showing all zoning districts considered within five hundred feet of the proposed location that are

higher on the preference list and a narrative explaining why the other zoning district locations higher on the preference list are not feasible. City staff shall accept a due diligence analysis for zoning district locations if such complies with the requirements above. Applications submitted by an applicant must still comply with all other requirements under the El Paso City Code. The following is the list of zoning district location preferences:

a. Heavy commercial and manufacturing zoning districts.

b. Light commercial and special purpose zoning districts.

c. Residential and apartment zoning districts.

E. PWSF located in the NOS zoning district is prohibited.

F. All PWSF shall comply with the requirements under this subsection listed on the PWSF Table below. Meeting the special permit requirements under this subsection and PWSF Table is not a guarantee of approval of a special permit. All special permit applications must meet the requirements of Chapter 20.04 (Administrative Provisions), Article V (Special Permit Approval Process) of the El Paso City Code. The requirements for all PWSF are as listed in the following PWSF Table:

0.0	Zoning Districts	A. Residential and Apartment Districts (including RF, SRR, PR-I, PR-II, & PMD)	B. C-1, C-2, P-C and C-OP Commercial Districts, S-D Special Development, and Special Purpose Districts (excluding RF, SRR, PR-I, PR-II, PMD, and P-I)	C. C-3, C-4 and C-5 Commercial Districts	D. M-I, M-2, M-3, P-I, & Q (Manufacturing, Industrial and Quarry Districts)
1.0	Ground Mounted PWSF				
	1.1 Permitted	Special Permit Required	Permitted by right in C-1 and C-2 zoning districts only. Special Permit approval required in all other zoning districts in Section F.0.0.B. Special permit approval required also if exceptions or modifications are requested, or unless otherwise indicated.	Permitted by right. Special Permit approval required if exceptions or modifications are requested	Permitted by right. Special Permit approval required if exceptions or modifications are requested
	1.2 Setbacks	3' from any abutting property line for every 1' of structure height abutting Residential and Apartment zoning districts (including RF, SRR, PR-I, PR-II, & PMD); 2' from any property line for every 1' of structure height abutting Residential and Apartment zoning districts (including RF, SRR, PR-I, PR-II, & PMD) for facilities camouflaged as a Low Visibility Facility only; 1' from any abutting property line for every 1' of tower height abutting all other zoning districts in Section F.0.0.B, Section F.0.0.C., and Section F.0.0.D. For a property line that abuts right-of-way. The base zoning setback standard applies provided however that if the right-of-way separates the property from a Residential or Apartment zoning district (including RF, SRR, PR-1, PR-II, & PMD), the following minimum setbacks must be maintained measured from the base of the antenna support structure to the property line of the Residential or Apartment zoning district (including RF, SRR, PR-1, PR-II, & PMD) across the right-of-way: 3' setback for every 1' of tower height for facilities that are not camouflaged as a Low Visibility Facility. The width of the right-of-way may be included in the setback measurement in accordance to Section F.1.2.1 below; 2' setback for every 1' of tower height for facilities camouflaged as a Low Visibility Facility. The width of the right-of-way may be included in the setback measurement in accordance to Section F.1.2.1 below. For a property line that abuts right-of-way. The base zoning setback standard applies provided however that if the right-of-way separates the property from any zoning district other than a Residential or Apartment zoning district (including RF, SRR, PR-1, PR-II, & PMD), then a minimum 1' setback for every 1' of tower height must be maintained measured from the base of the antenna support structure to the property line of the zoning district across the right-of-way. The width of the right-of-way may be included in the setback measurement in accordance to Section F.1.2.1 below.	3' from any abutting property line for every 1' of structure height abutting Residential and Apartment zoning districts (including RF, SRR, PR-I, PR-II, & PMD); 2' from any property line for every 1' of structure height abutting Residential and Apartment zoning districts (including RF, SRR, PR-I, PR-II, & PMD) for facilities camouflaged as a Low Visibility Facility only; 1' from any abutting property line for every 1' of tower height abutting all other zoning districts in Section F.0.0.B, Section F.0.0.C., and Section F.0.0.D. For a property line that abuts right-of-way. The base zoning setback standard applies provided however that if the right-of-way separates the property from a Residential or Apartment zoning district (including RF, SRR, PR-1, PR-II, & PMD), the following minimum setbacks must be maintained measured from the base of the antenna support structure to the property line of the Residential or Apartment zoning district (including RF, SRR, PR-1, PR-II, & PMD) across the right-of-way: 3' setback for every 1' of tower height for facilities that are not camouflaged as a Low Visibility Facility. The width of the right-of-way may be included in the setback measurement in accordance to Section F.1.2.1 below; 2' setback for every 1' of tower height for facilities camouflaged as a Low Visibility Facility. The width of the right-of-way may be included in the setback measurement in accordance to Section F.1.2.1 below. For a property line that abuts right-of-way. The base zoning setback standard applies provided however that if the right-of-way separates the property from any zoning district other than a Residential or Apartment zoning district (including RF, SRR, PR-1, PR-II, & PMD), then a minimum 1' setback for every 1' of tower height must be maintained measured from the base of the antenna support structure to the property line of the zoning district across the right-of-way. The width of the right-of-way may be included in the setback measurement in accordance to Section F.1.2.1 below.	1' from any abutting property line for every 1' of tower height abutting Residential and Apartment zoning districts (including RF, SRR, PR-I, PR-II, & PMD); All other zoning districts in Section F.0.0.B, Section F.0.0.C., and Section F.0.0.D. subject to base zoning setback standards. For a property line that is abutting right-of-way, the base zoning setback standard applies provided however that if right-of-way separates the property from a Residential or Apartment zoning district (including RF, SRR, PR-1, PR-II, & PMD), a minimum 1' setback for every 1' of tower height must be maintained from the base of the antenna support structure to the property line of the Residential or Apartment zoning district (including RF, SRR, PR-1, PR-II, & PMD) across the right-of-way. Applicant may include the width of the right-of-way in the setback measurement in accordance to Section F.1.2.1 below.	1' from any abutting property line for every 1' of tower height abutting Residential and Apartment zoning districts (including RF, SRR, PR-I, PR-II, & PMD); All other zoning districts in Section F.0.0.B, Section F.0.0.C., and Section F.0.0.D. subject to base zoning setback standards. For a property line that is abutting right-of-way, the base zoning setback standard applies provided however that if right-of-way separates the property from a Residential or Apartment zoning district (including RF, SRR, PR-1, PR-II, & PMD), a minimum 1' setback for every 1' of tower height must be maintained from the base of the antenna support structure to the property line of the Residential or Apartment zoning district (including RF, SRR, PR-1, PR-II, & PMD) across the right-of-way. Applicant may include the width of the right-of-way in the setback measurement in accordance to Section F.1.2.1 below.
	1.2.1 Additional Setback Standards for Ground Mounted PWSF	If abutting ROW or easement, the width of the ROW or easement may [be] included in the setback measurement			

0.0	Zoning Districts	A. Residential and Apartment Districts (including RF, SRR, PR-I, PR-II, & PMD)	B. C-1, C-2, P-C and C-OP Commercial Districts, S-D Special Development, and Special Purpose Districts (excluding RF, SRR, PR-I, PR-II, PMD, and P-I)	C. C-3, C-4 and C-5 Commercial Districts	D. M-I, M-2, M-3, P-I, & Q (Manufacturing, Industrial and Quarry Districts)
	1.3 Reductions in minimum setback requirements	For facilities that abut Residential and Apartment zoning districts (including RF, SRR, PR-I, PR-II, & PMD) and that are camouflaged as a Low Visibility Facility, setbacks may be reduced with a special permit provided that setback may not be reduced below 1' from any abutting property line for every 1' of tower height (see Section F.1.3.1 below)	For facilities that abut Residential and Apartment zoning districts (including RF, SRR, PR-I, PR-II, & PMD) and that are camouflaged as a Low Visibility Facility, setbacks may be reduced with a special permit provided that setback may not be reduced below 1' from any abutting property line for every 1' of tower height (see Section F.1.3.1 below)	N/A	N/A
	1.3.1 Additional Standards for Special Permits Applicable to Reductions in required minimum setbacks for Ground Mounted PWSF	Modifications to Required Setbacks must meet the following criteria: i. The property on which the PWSF antenna support structure is to be located is the only property reasonably available for use by the applicant that will enable the applicant to reasonably serve the area designated in a manner that is technically feasible and commercially reasonable; ii. The applicant is unable to collocate its antennas on an existing PWSF antenna support structure that is used by a third person or entity and located such that the applicant is able to reasonably serve the area designated in a manner that is technically feasible and commercially reasonable; iii. The applicant cannot use another PWSF antenna support structure that is located such that the applicant is able to reasonable serve the area designated in a manner that is technically feasible and commercially reasonable or that the other PWSF antenna support structures used by the applicant will not safely support additional antennas; and iv. Facility is camouflaged as a Low Visibility Facility.			
	1.4 Minimum separation (measured base of existing to base of proposed)	One-half mile	One-half mile	2,000'	' 1,760
	1.5 Reductions in minimum separation requirements for Ground Mounted PWSF	Minimum separation may be reduced for facilities camouflaged as a Low Visibility Facility only with a special permit, but not below 2,000' (see Section F.1.5.1)	Minimum separation may be reduced for facilities camouflaged as a Low Visibility Facility only with a special permit, but not below 1,760' (see Section F.1.5.1)	Minimum separation may be reduced for facilities camouflaged as a Low Visibility Facility only with a special permit (see Section F.1.5.1)	Minimum separation may be reduced for facilities camouflaged as a Low Visibility Facility only with a special permit (see Section F.1.5.1)
	1.5.1 Additional Standards for Special Permits Applicable to Reductions in required minimum separation for Ground Mounted PWSF	Modifications to Required Minimum Separation must meet the following criteria: i. The applicant is reasonably unable to use property that meets the minimum separation distance in Section F.1.4 from another PWSF antenna support structure and be able to reasonably serve the area designated in a manner that is technically feasible and commercially reasonable; ii. The property on which the PWSF antenna support structure is to be located is the only reasonably available property for use within the minimum separation distance in Section F.1.4 of another PWSF antenna support structure that will enable the applicant to reasonably serve the area designated in a manner that is technically feasible and commercially reasonable; iii. The area designated by the applicant cannot be reasonably served in a manner that is technically feasible and commercially reasonable by locating additional antennas on the applicant's existing PWSF antenna support structures because such existing PWSF antenna support structures cannot safely support additional antennas; iv. The applicant is unable to collocate its antennas on an existing PWSF antenna support structure that is owned or operated by a third person or entity and located such that the applicant is able to reasonably serve the area designated in a manner that is technically feasible and commercially reasonable; v. The applicant shall submit a list of addresses/locations showing all existing PWSF within the radius of the minimum separation distance in Section F.1.4 of the proposed site and a map depicting such locations with the special permit application; and vi. Facility is camouflaged as a Low Visibility Facility.			
	1.6 Maximum Height Permitted (measured to top of steel)	35'	C-1 and C-2 zoning districts only: 35'. For all other zoning districts in Section F.0.0.B, height shall be limited to 45'.	60'	60'
	1.7 Allowable Increases in Maximum Height Permitted	N/A	C-1 and C-2 zoning districts only: Height shall be permitted up to 45' if facility is camouflaged as a Low Visibility Facility.	N/A	N/A
	1.8 Special Permit for Additional Height	Height shall be permitted up to 45' with a special permit provided the applicant meets the requirements of Section F.1.8.1.A.1 below. Height shall be permitted up to 60' with a special permit provided the applicant meets the requirements of Section F.1.8.1.A.2 below.	C-1 and C-2 zoning districts only: Height shall be permitted up to 60' with a special permit provided the applicant meets the requirements of Section F.1.8.1.B.1 below.	Height shall be permitted up to 75' with a special permit provided applicant meets the requirements of Section F.1.8.1.C.1 below. Height shall be permitted up to 90' with a special permit provided the applicant meets the requirements of Section F.1.8.1.C.2 below.	Height shall be permitted up to 75' with a special permit provided applicant meets the requirements of Section F.1.8.1.D.1 below. Height shall be permitted up to 90' with a special permit provided the applicant meets the requirements of Section F.1.8.1.D.2 below.

0.0	Zoning Districts			A. Residential and Apartment Districts (including RF, SRR, PR-I, PR-II, & PMD)	B. C-1, C-2, P-C and C-OP Commercial Districts, S-D Special Development, and Special Purpose Districts (excluding RF, SRR, PR-I, PR-II, PMD, and P-I)	C. C-3, C-4 and C-5 Commercial Districts	D. M-I, M-2, M-3, P-I, & Q (Manufacturing, Industrial and Quarry Districts)
		1.8.1	Additional Standards for Special Permits for Additional Height for Ground Mounted PWSF	A. Residential and Apartment zoning districts (including RF, SRR, PR-I, PR-II, & PMD). 1. Must meet the following criteria for height to be permitted up to 45': i. Facility is camouflaged as a Low Visibility Facility. 2. Must meet the following criteria for height to be permitted up to 60': i. Facility is camouflaged as a Low Visibility Facility; and ii. Located on a property whose principal use is a church, school, or other permitted non-residential use.	B. C-1 and C-2 zoning districts only. 1. Must meet the following criteria for height to be permitted up to 60': i. Facility is camouflaged as a Low Visibility Facility.	C. C-3, C-4 and C-5 Commercial Districts. 1. Must meet the following criteria for height to be permitted up to 75': i. Facility has been designed and structurally engineered to accommodate for colocation of a second carrier or agency; and ii. If facility is proposed within 500' of a Residential or Apartment zoning district (including RF, SRR, PR-I, PR-II, & PMD), facility must be camouflaged as a Low Visibility Facility. 2. Must meet the following criteria for height to be permitted up to 90': i. Facility has been designed and structurally engineered to accommodate for colocation of two additional carriers or agencies for a total of three carriers or agencies; ii. Facility is camouflaged as a Low Visibility Facility; iii. The property on which the PWSF antenna support structure is to be located is the only property reasonably available for use by the applicant for a PWSF antenna support structure of the height being proposed by the applicant that will enable the applicant to reasonably serve the area designated in a manner that is technically feasible and commercially reasonable; iv. The applicant is unable to collocate its antennas on an existing PWSF antenna support structure that is owned or operated by a third person or entity and located such that the applicant is able to reasonably serve the area designated in a manner that is technically feasible and commercially reasonable; v. The applicant cannot use another PWSF antenna support structure that is located such that will enable the applicant to reasonably serve the area designated in a manner that is technically feasible and commercially reasonable or that the other PWSF antenna support structures used by the applicant will not safely support additional antennas; and vi. Due to topographical conditions, the proposed height of the PWSF antenna support structure is reasonably necessary to enable the applicant to reasonably serve the area designated in a manner that is technically feasible and commercially reasonable.	D. M-I, M-2, M-3, P-I, & Q (Manufacturing, Industrial and Quarry Districts) 1. Must meet the following criteria for height to be permitted up to 75': i. Facility has been designed and structurally engineered to accommodate for colocation of a second carrier or agency; and ii. If facility is proposed within 500' of a Residential or Apartment zoning district (including RF, SRR, PR-I, PR-II, & PMD), facility must be camouflaged as a Low Visibility Facility. 2. Must meet the following criteria for height to be permitted up to 90': i. Facility has been designed and structurally engineered to accommodate for colocation of two additional carriers or agencies for a total of three carriers or agencies; ii. Facility is camouflaged as a Low Visibility Facility; iii. The property on which the PWSF antenna support structure is to be located is the only property reasonably available for use by the applicant for a PWSF antenna support structure of the height being proposed by the applicant that will enable the applicant to reasonably serve the area designated in a manner that is technically feasible and commercially reasonable; iv. The applicant is unable to collocate its antennas on an existing PWSF antenna support structure that is owned or operated by a third person or entity and located such that the applicant is able to reasonably serve the area designated in a manner that is technically feasible and commercially reasonable; v. The applicant cannot use another PWSF antenna support structure that is located such that will enable the applicant to reasonably serve the area designated in a manner that is technically feasible and commercially reasonable or that the other PWSF antenna support structures used by the applicant will not safely support additional antennas; and vi. Due to topographical conditions, the proposed height of the PWSF antenna support structure is reasonably necessary to enable the applicant to reasonably serve the area designated in a manner that is technically feasible and commercially reasonable.

0.0	Zoning Districts		A. Residential and Apartment Districts (including RF, SRR, PR-I, PR-II, & PMD)	B. C-1, C-2, P-C and C-OP Commercial Districts, S-D Special Development, and Special Purpose Districts (excluding RF, SRR, PR-I, PR-II, PMD, and P-I)	C. C-3, C-4 and C-5 Commercial Districts	D. M-I, M-2, M-3, P-I, & Q (Manufacturing, Industrial and Quarry Districts)
	1.9	Camouflage and Screening	i. All ground-mounted PWSF shall be camouflaged. Camouflaging is a method of disguising or concealing the appearance of an object by changing its usual color, modifying its shape, or locating it in a structure that complements the natural setting, existing and surrounding structures. Color cannot be the used as the only method of camouflaging. In the context of this section, camouflaging includes, but is not limited to, making PWSF antenna support structures resemble manmade trees, locating PWSF antenna support structures in bell steeples or clock towers, or on similar alternative-design mounting structures. ii. All ground-mounted PWSF shall be located to blend in with surrounding area and located in areas where the existing topography, vegetation, buildings, and other structures provide the greatest amount of screening, and sited so as to not stand out of the landscape as a wireless telecommunications facility. Considerations such as architectural designs, adjacent land uses, scale, color, and texture should be reviewed to make facility as compatible as possible to the surrounding area, including views from public areas as well as from private residences. A visual analysis, which may include renderings, photos, and design mockups, shall be submitted showing the proposed facility from adjacent properties, nearby residences, and public rights-of-way (at least one from 1,000 feet away on nearby roadways) to assess the visual impact. The applicant will need to demonstrate how the proposed camouflaging blends in with the surrounding area and why the design is compatible. Multiple design options may need to be submitted to ensure other options have been explored. Staff shall review the visual analysis to ensure a compatible design has been submitted and provide comments if the design is not appropriate for the area. iii. All ground-mounted PWSF will be categorized as High Visibility and Low Visibility based on the context of the proposed facility. High Visibility facilities shall include designs such as man-made trees and are encouraged for existing open space or parkland areas where they may blend more easily. A "Low Visibility Facility" is a facility that is designed and constructed in a manner in which (1) the antennas, cables, and fixtures are completely enclosed so that such antennas, cables, and fixtures are not visible from any angle, (2) the facility resembles the material, color, and texture of buildings or structures located within the subject property and, (3) the facility serves or performs a function that is associated with the current use of the subject property. Without limiting the types of designs, the following are examples of Low Visibility Facilities: a bell steeple located on a church property, a clock tower on a school campus, a flag pole (with flag) on a government building, windmill on a rural district lot, or an operational light pole on a parking lot. The Zoning Administrator is the person responsible for determining whether a proposed facility meets the criteria to be classified as a Low Visibility Facility. iv. Metallic surfaces shall be painted to reduce glare and reflections. No exterior paint colors shall be used which have a light reflecting value (LRV) greater than forty percent. The LRV of a paint is available from paint manufacturers and it measures the amount of light reflected by a certain color. v. Screening of antennas on PWSF antenna support structures may include the use of existing parapets, walls, or similar architectural elements provided that it is painted and texturized to integrate with the architecture of the surrounding structure. vi. Landscaping shall comply with all code requirements for landscaping.		
	1.10	Screening Fence	A six-foot high screening wall or fence of other than chain-link shall be constructed around the base of a PWSF antenna support structure to provide for security. The gate which provides access to the PWSF antenna support structure shall remain locked at all times except when being used for access by maintenance personnel.			
	1.11	Access Driveway	The access driveway and off-street parking space for use by maintenance vehicles shall be paved as approved by the building official.			
	1.12	Increase in Elevation on Existing Ground Mounted PWSF Antenna Support Structure	An increase in elevation, not to exceed height found in Section F.1.6 and Section F.1.7 plus allowed modifications and Section F.1.8 above, of an existing permitted PWSF antenna support structure may be permitted only to allow for collocation of additional antennas, unless otherwise permitted by FCC provisions of Section 6409(a) and Section 332(c)(7). A structural recertification report prepared and sealed by a licensed professional engineer shall be required, and such report shall be reviewed and approved by the building official prior to issuance of a building permit.			
	1.13	Other Requirements Applicable to Ground Mounted PWSF	The following must accompany a request for a special permit or building permit: i. All towers located within two hundred feet of a recognized federal, state or local historic district are subject to review and approval by the Historic Preservation Officer. ii. A detailed site development plan showing the PWSF antenna support structure, antennas, and equipment in relation to the existing surroundings including screening, fencing, camouflage, off-street parking, and access from the PWSF antenna support structure to the nearest public street; iii. Evidence of satisfactory completion of a certification of compliance for personal wireless service providers issued by the public safety technology office prior to actual use of the proposed facility, such certification to include a verification letter that all required Federal Aviation Administration (FAA) and Federal Communications Commission (FCC) approvals have been requested and that site-specific structural engineering and nonionizing electromagnetic radiation (NIER) reports are available on request from the applicant; and iv. The design of related support structures for new PWSF antenna support structures and appurtenant equipment storage facilities shall incorporate materials, colors, textures, screening, or camouflaging techniques that will blend them to the extent reasonably possible into the natural setting, existing and surrounding structures. The applicant will be required to provide photographs of predevelopment views versus post-development illustrations, at ninety-degree angles for a full three hundred sixty-degree radius, shown to scale. The building official shall review and consider any of the five items above to mitigate negative visual impacts created by the proposed PWSF antenna support structure and may require reasonable revisions necessary to bring the application into compliance with one or more of the five items above.			
	1.14	Collocation or installation of additional antennas	Permitted as per FCC provisions of Section 6409(a) and Section 332(c)(7). A structural recertification report prepared and sealed by a licensed professional engineer shall be required, and such report shall be reviewed and approved by the building official prior to issuance of a building permit.			
	1.15	Existing non-conforming ground-mounted PWSF	An existing ground-mounted PWSF shall be allowed to be modified under the FCC provisions of Section 6409(a) and Section 332(c)(7). All non-conforming ground-mounted PWSFs may continue in existence as a nonconforming structure and are allowed to be modified or rebuilt on the same property as permitted in Section 20.22.100.			

0.0	Zoning Districts	A. Residential and Apartment Districts (including RF, SRR, PR-I, PR-II, & PMD)	B. C-1, C-2, P-C and C-OP Commercial Districts, S-D Special Development, and Special Purpose Districts (excluding RF, SRR, PR-I, PR-II, PMD, and P-I)	C. C-3, C-4 and C-5 Commercial Districts	D. M-I, M-2, M-3, P-I, & Q (Manufacturing, Industrial and Quarry Districts)
2.0	Roof-Mounted PWSF				
2.1	Permitted	Only on residential structures consisting of five or more units or on nonresidential structures	Only on Commercial or Mixed Use structures or those residential structures consisting of five or more units	Only on Commercial or Mixed Use structures or those residential structures consisting of five or more units	Only on Commercial or Mixed Use structures or those residential structures consisting of five or more units
2.2	Maximum Height Permitted (measured to top of steel or antennae, whichever is greater)	15' in height above the existing roofline			
2.3	Allowable Increases in Maximum Height Permitted	N/A	Up to 15' above the Maximum Height Permitted in Section F.2.2 above allowed by approval of a Special Permit (see Section F.2.3.1 below)	Up to 15' above the Maximum Height Permitted in Section F.2.2 above allowed by approval of a Special Permit (see Section F.2.3.1 below)	Up to 15' above the Maximum Height Permitted in Section F.2.2 above allowed by approval of a Special Permit (see Section F.2.3.1 below)
2.3.1	Additional Standards Applicable to permitted increases in Height for Roof-mounted PWSF	i. The property on which the PWSF antenna support structure is to be located is the only property reasonably available for use by the applicant for a PWSF antenna support structure of the height being proposed by the applicant that will enable the applicant to reasonably serve the area designated in a manner that is technically feasible and commercially reasonable; ii. The applicant is unable to collocate its antennas on an existing PWSF antenna support structure that is owned or operated by a third person or entity and located such that the applicant is able to reasonably serve the area designated in a manner that is technically feasible and commercially reasonable; iii. The applicant cannot use the roof on the same structure on which it is located such that will enable the applicant to reasonably serve the area designated in a manner that is technically feasible and commercially reasonable or that the other PWSF antenna support structures used by the applicant will not safely support additional antennas; and iv. Due to topographical conditions, the proposed height of the PWSF antenna support structure is reasonably necessary to enable the applicant to reasonably serve the area designated in a manner that is technically feasible and commercially reasonable.			
2.4	Camouflage and Screening	i. Camouflaging is a method of disguising or concealing the appearance of an object by changing its usual color, modifying its shape, or locating it in a structure that complements the natural setting, existing and surrounding structures. In the context of this section, camouflaging includes, but is not limited to, making PWSF antenna support structures resemble man-made trees, locating PWSF antenna support structures such as in bell steeples or clock towers, or on similar alternative-design mounting structures. ii. Metallic surfaces shall be painted to reduce glare and reflections. No exterior paint colors shall be used which have a light reflecting value (LRV) greater than forty percent. The LRV of a paint is available from paint manufacturers and it measures the amount of light reflected by a certain color. iii. Screening of antennas on roof-mounted PWSF antenna support structures may include the use of existing parapets, walls, or similar architectural elements provided that it is painted and texturized to integrate with the architecture of the surrounding structure. Screening is not required when the height of the roofline exceeds thirty-five feet. Screening may be waived by the building official on buildings where the height of the roofline is thirty-five feet or less based on evidence provided by the applicant that the roof cannot structurally support the screen.			
2.5	Other Requirements	The following must accompany a request for a special permit or building permit: i. A detailed site development plan showing the PWSF antenna support structure, antennas, and equipment in relation to the existing surroundings including screening, fencing, camouflage, off-street parking, and access from the PWSF antenna support structure to the nearest public street; ii. Evidence of satisfactory completion of a certification of compliance for personal wireless service providers issued by the public safety technology office prior to actual use of the proposed facility, such certification to include a verification letter that all required Federal Aviation Administration (FAA) and Federal Communications Commission (FCC) approvals have been requested and that site-specific structural engineering and nonionizing electromagnetic radiation (NIER) reports are available on request from the applicant; and iii. Satisfactory completion of a certification of compliance for personal wireless service providers issued by the public safety technology office prior to actual use of the proposed facility, such certification to include a verification letter that all required FAA and FCC approvals have been requested and that site-specific structural and the roof and a nonionizing electromagnetic radiation (NIER) reports are available on request from the applicant.			
2.6	Collocation	Collocation or installation of additional antennas on an existing PWSF antenna support structure is permitted. A structural recertification report for both the structure and the roof, prepared and sealed by a licensed professional engineer, shall be required, and such report shall be reviewed and approved by the building official prior to issuance of a building permit.			

0.0	Zoning Districts	A. Residential and Apartment Districts (including RF, SRR, PR-I, PR-II, & PMD)	B. C-1, C-2, P-C and C-OP Commercial Districts, S-D Special Development, and Special Purpose Districts (excluding RF, SRR, PR-I, PR-II, PMD, and P-I)	C. C-3, C-4 and C-5 Commercial Districts	D. M-I, M-2, M-3, P-I, & Q (Manufacturing, Industrial and Quarry Districts)
3.0	Facility-mounted PWSF				
	3.1 Permitted	Must be attached to a structure used for something other than a PWSF antenna support structure			
	3.2 Maximum Height Permitted (measured to top of steel or antennae, whichever is greater)	Limited to maximum height permitted in base zoning district in which the facility is located as indicated in Appendix B, Density and Dimensional Standards of Title 20			
	3.3 Allowable increases in Maximum Permitted Height	As per Section 20.12.030.C, 15 additional feet on an existing facility to accommodate collocation of additional antennas			
	3.4 Camouflage and Screening	i. Camouflaging is a method of disguising or concealing the appearance of an object by changing its usual color, modifying its shape, or locating it in a structure that complements the natural setting, existing and surrounding structures. In the context of this section, camouflaging includes, but is not limited to, making PWSF antenna support structures resemble man-made trees, locating PWSF antenna support structures such as in bell steeples or clock towers, or on similar alternative-design mounting structures. Facility-mounted PWSF shall be painted to integrate and blend with the facility-structure. ii. Metallic surfaces shall be painted to reduce glare and reflections. No exterior paint colors shall be used which have a light reflecting value (LRV) greater than forty percent. The LRV of a paint is available from paint manufacturers and it measures the amount of light reflected by a certain color. ii. Screening of antennas on facility-mounted PWSF antenna support structures may include the use of existing parapets, walls, or similar architectural elements provided that it is painted and texturized to integrate with the architecture of the surrounding structure. Screening is not required when the height of the roofline exceeds thirty-five feet. Screening may be waived by the building official on buildings where the height of the roofline is thirty-five feet or less based on evidence provided by the applicant that the roof cannot structurally support the screen.			
	3.5 Other Requirements	The following must accompany a request for a building permit: i. A detailed plan showing the facility structure, antenna structures and equipment in relation to the existing surroundings, including screening, fencing, camouflage, off-street parking and access from the facility structures site to the nearest public street; ii. Satisfactory completion of a certification of compliance for personal wireless service providers issued by the public safety technology office prior to actual use of the proposed facility accompanied by a verification letter that all required Federal Aviation Administration (FAA) and Federal Communications Commission (FCC) approvals have been requested and that site-specific structural engineering and nonionizing electromagnetic radiation (NIER) reports are available on request from the applicant; and iii. The applicant shall provide documentation to the building official that the applicant has the permission from the structure owner to install the antenna(s) on the structure.			
	3.6 Collocation	Collocation of additional PWSF antennas on an existing facility structure is permitted. A structural recertification report prepared and sealed by a licensed professional engineer shall be required, and such report shall be reviewed and approved by the building official prior to issuance of a building permit.			

(Ord. 16826 § 1, 2008; Ord. 16653 § 2 (part), 2007; Ord. No. 17235, § 3, 11-10-2009; Ord. No. 17306, § 4, 4-6-2010; Ord. No. 17442, § 25, 10-26-2010; Ord. No. 19016, §§ 3—7(Exh. B), 1-7-2020; Ord. No. 19059, §§ 2, 3(Att. B), 5-12-2020)

20.10.460 Pet shops.

Pet shops for retail sale of animals, including grooming services, must comply with Title 7 of this Code, and any workrooms and cages shall be maintained within a completely enclosed, soundproof building and that such shop be operated in a manner so as to produce no objectionable noise or odors. (Ord. 16653 § 2 (part), 2007)

20.10.470 Planned residential development.

A. A planned residential development shall occupy at least the minimum site area established in the district regulations. City council may approve a special permit for a planned residential development with general lot sizes and setbacks below the minimum of the underlying zoning district. The proposed development shall additionally meet the following requirements necessary to protect the public health, safety and general welfare of the community and in order to foster the attractiveness of a residential development and its surrounding neighborhoods:

1. Evaluation Criteria.

a. Proposed buildings shall be sited harmoniously to the terrain and to other buildings in the vicinity that have a visual relationship to the proposed buildings. For purposes of this subsection, harmoniously shall not be deemed to require that the same architecture or same type of building materials be uniformly used.

b. With respect to vehicular and pedestrian circulation and parking, special attention shall be given to the location and number of access points to public streets, width of interior drives and access points, relationship of vehicular and pedestrian traffic, and the arrangement of parking areas that are safe and convenient.

2. General Requirements.

a. Private streets and gates shall be permitted within a planned residential development and shall conform to the design standards enumerated in Title 19 (Subdivisions) of this Code.

b. The minimum site area for a planned residential development shall be one acre, within which only residential uses of the base-zoning district shall be permitted. Extensions to a planned residential development from a common boundary shall be permitted in increments of less than one acre, provided that the owners of at least seventy-five percent of the land within the original planned residential development are in agreement and are included as joint applicants to the request for special permit.

c. The minimum area requirement of the base-zoning district may be reduced by no more than twenty-five percent for lots within a planned residential development, provided, however, that the maximum density permitted by the base-zoning district shall apply in all cases except as otherwise approved by any applicable special permit granted pursuant to Chapter 20.04 (Administrative Provisions).

d. The setback requirements of the base-zoning district shall not apply to a planned residential development, except as follows:

i. The distance between buildings shall be a minimum of ten feet except as otherwise permitted in this title;

ii. The length of the driveway shall not be less than twenty feet as measured from the face of the garage or carport to the dwelling side of the sidewalk, or to the property line where there is no sidewalk.

e. The perimeter of the planned residential development shall be designed to insure compatibility with adjacent existing or potential development by provision of compatible uses and structures.

f. No building shall exceed the height requirements of the base-zoning district.

g. Consideration in the site plan review and evaluation process shall include the following:

i. The nature and character of the development and adequacy of the buffer between proposed improvements on the site and adjacent property;

ii. The adequacy of utilities, access, drainage and other necessary supporting facilities that have been or will be provided;

iii. The adequacy of the design, location and arrangement of driveways and parking spaces so as to provide for the safe and convenient movement of vehicular and pedestrian traffic without adversely affecting the general public or adjacent developments.

h. A planned residential development shall be an architecturally integrated subdivision, whether unified by similar use and density, design, building materials, or open space and streetscape elements. (Ord. 16653 § 2 (part), 2007)

20.10.480 Poultry hatchery.

Hatching, raising and marketing of poultry must comply with Title 7 of this Code, and are subject to the following requirements:

A. In a Ranch-Farm District - no building pertaining to this use shall be closer than fifty feet from the nearest adjoining property line;

B. In an R-1 (Residential) District - no building pertaining to this use shall be closer than one hundred feet from the nearest adjoining property line. A minimum lot size of forty thousand square feet shall be required. (Ord. 16653 § 2 (part), 2007)

20.10.490 Processing facilities.

A. Light Processing Facilities. Light processing facilities are limited to baling, briqueting, crushing, compacting, grinding, shredding and sorting of source-separated recyclable materials and repairing of reusable materials. Where permitted in a district, by special permit, light processing facilities shall comply with the following standards:

1. Facility does not abut a bridge or overpass;

2. Light processors will operate in an enclosed building except for incidental storage, or:

a. Shall be located within an area enclosed on all sides by a screening fence or wall not less than six feet in height and landscaped on all street frontages, and

b. Located at least one hundred fifty feet from the property lines of an existing residential use or existing R, A, PR, SRR, RMU, PMD or NOS zoning district;

3. A light processing facility shall be no larger than forty-five thousand square feet and may not shred, compact or bale ferrous metals other than food and beverage containers;

4. A light processing facility may accept used motor oil for recycling from the generator in accordance with federal, state and local regulations;

5. Setbacks and landscaping requirements shall be as provided for in the zoning district in which the facility is located or required by the city at the time of approval of the special permit;

6. Oil storage must be in containers approved by the Texas Water Commission. No storage, excluding truck trailers and overseas containers, will be visible above the height of the fencing;

7. Site shall be maintained free of litter and any other undesirable materials, will be cleaned of loose debris on a daily basis and secured from unauthorized entry and removal of materials when attendants are not present;

8. Space shall be provided on site for the anticipated peak load of customers to circulate, park and deposit recyclable materials. If the facility is open to the public, space will be provided for a minimum of ten customers or the peak load, whichever is higher;

9. One parking space will be provided for each commercial vehicle operated by the processing center. Parking requirements will otherwise be as mandated in Chapter 20.14 of this Code;

10. Noise levels shall be in compliance with Chapter 9.40 of this Code;

11. Any containers provided for after-hours donation of recyclable materials will be at least fifty feet from any property line of an existing residential use or existing R, A, PR, SRR, RMU, PMD or NOS zoning district, shall be of sturdy, rustproof construction, shall have sufficient capacity to accommodate materials collected, and shall be secure from unauthorized entry or removal of materials;

12. Donation areas shall be kept free of litter and any other undesirable material. The containers shall be clearly marked to identify the type of

material that may be deposited. Facility shall display a notice stating that no material shall be left outside the recycling containers;

13. Sign requirements shall be those provided for in the zoning district in which the facility is located. In addition, facility will be clearly marked with the name and phone number of the facility operator and the hours of operation;

14. No dust, fumes, smoke, vibration or odor may be detectable on neighboring properties.

B. Heavy/Light Processing Facilities. Where permitted in an M-2 or M-3 district, heavy and light processing facilities shall comply with the following standards:

1. Facility does not abut a bridge or overpass and shall be located at least one hundred fifty feet from the property lines of an existing residential use or existing R, A, PR, SRR, PMD or NOS zoning district;

2. Shall be located within an enclosed building or enclosed on all sides by a screening fence or wall not less than six feet in height and landscaped on all street frontages;

3. Noise levels shall be in compliance with Chapter 9.40 of this Code;

4. Heavy processing facilities may accept used motor oil for recycling from the generator in accordance with federal, state and local regulations;

5. Setbacks shall be those required for in the zoning district in which the facility is located;

6. Oil storage must be in containers approved by the Texas Water Commission.

C. Waste Processing Facilities. Where permitted by special permit in an M-1 district and where permitted in an M-2 or M-3 district, waste processing facilities shall comply with the following standards:

1. Facility does not abut a bridge or overpass;

2. No waste processing facility may be located within five hundred feet, measured from property line of the waste processing facility to property line of the following:

a. A church;

b. A public or private elementary or secondary school;

c. A nursery school, kindergarten, child care center, day nursery or day care center;

d. A university, college, vocational or business school;

e. A boundary of any R, A, PR, SRR, PMD, RMU or NOS zoning district;

f. A park;

g. The property line of a lot devoted to any residential use;

3. Facility shall be entirely operating in an enclosed building or:

a. Within an area enclosed by a screening fence having a minimum height of six feet; and

b. Landscaped on all street frontages; and

c. At least one thousand feet from the property line of the waste processing facility to the property line of existing residential use or existing R, A, PR, SRR, PMD, RMU or NOS zoning district;

4. Any exterior storage of material shall be in sturdy containers or enclosures which are covered, secured and maintained in good condition;

5. Site shall be maintained free of litter and any other undesirable materials, and will be cleaned of loose debris on a daily basis;

6. Noise levels shall be in compliance with Chapter 9.40 of this Code. (Ord. 16817 § 8, 2008; Ord. 16653 § 2 (part), 2007)
(Ord. No. 17306, § 4, 4-6-2010; Ord. No. 19019, § 4, 1-7-2020)

20.10.500 Quarries.

A. This district is established in order to reasonably and uniformly limit, safeguard and control future mining, quarrying, excavating, processing and stockpiling of rock, sand, gravel, clay and aggregate, for commercial or retail sales in a manner and location which is in the public interest and which is consistent with the comprehensive plan and any supplemental land use and developmental policies which are adopted by the city plan commission and city council.

Includes accessory buildings, equipment, supplies and land which are used solely for the processing, storage, maintenance and sale of materi-

als, operating and security personnel offices, and other uses associated with quarrying, landfill and transfer station operations, also the sale, within a building, of supplies or merchandise normally used or produced in direct connection with a permitted use, or supplies normally used in direct connection with operations and products derived from permitted uses, including, but not limited to, supplies such as cement, rebar, mesh, wooden forms and other concrete finish equipment.

B. Application for a Q quarry district shall require submittal of the following with the rezoning application:

1. A metes and bounds description of the proposed district certified by a professional engineer or a registered land surveyor;

2. One copy of the zoning map at a scale of three hundred feet to the inch, outlining in red the area proposed for change of zoning;

3. Eight copies of a site plan drawn to a scale of not less than one hundred feet to the inch, unless a modification as to scale is authorized by the planning official. This site plan shall show the following:

a. The boundaries of the proposed district;

b. The location, arrangement and use of all existing structures or properties, utility rights-of-way and easements, local and arterial streets, schools, parks and other such features for the proposed district;

c. Existing contours at not more than twenty-foot intervals where the natural slope is greater than five percent, and not more than two-foot intervals where the natural slope is less than five percent;

d. Proposed use(s);

e. Areas of excavation;

f. Proposed contours to which the district is to be excavated.

4. Two copies of a master drainage plan showing the following:

a. Impact on the water table;

b. All watershed tributaries to the proposed district;

c. Amount of storm runoff;

d. Proposed method of controlling the expected runoff.

This drainage plan must be accompanied by hydraulic calculations based on the city's one hundred-year storm prediction and must be signed and sealed by a registered professional engineer.

5. For the purpose of erosion control and soil stabilization, a plan showing the method of stabilization. The city engineer may waive this requirement if it is determined to be impossible or impractical.

C. Responsibilities of the Owner and Operator. The landowner or his authorized agent will bear responsibility for:

1. Obtaining, when required, the services of an engineer or architect authorized to practice in Texas;

2. All of the legal duties, obligations or liabilities incidental to ownership of the property while the work is in progress or after its completion. The provisions of this chapter will not relieve any person or owner from any responsibility for damages to persons or property otherwise imposed by law, nor impose any liability upon the city or any official of the city for such damages;

3. Installing the appropriate devices, structures, landscaping and facilities and executing soil stabilization, erosion control, handling of materials and other proper measures to fulfill the intent and purpose of this chapter;

4. Providing continued maintenance and repair of all retaining walls, cribbing, drainage facilities, slopes, landscaping, soil stabilization and erosion control measures and any other protective devices located within the property;

5. Obtaining clearance from all utilities within the boundaries of the district. Failure to clear with any such utility may result in an immediate suspension of the work at the discretion of the building official.

D. Authority of the City Engineer and Building Official. The building official, under authority of this chapter, has the authority to impose any of the following requirements to protect the interest of the property owner, the adjacent property owner

and the general public during or after the extraction operation as may be reasonably necessary to cause the work to fulfill the purpose of this chapter:

1. Interim and permanent soil erosion control requirements;

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2. Slope stabilization requirements;

3. Work procedures and safety requirements related to transportation of materials on public ways;

4. Fencing or other screening as may be required to protect surrounding properties.

E. Operating Standards.

1. Any permitted quarry operation shall meet all applicable local, state and federal regulations.

2. Any blasting shall be done in accordance with the requirements of this code, except that no grading permit shall be required as a part of those requirements.

3. A perimeter setback of one hundred feet shall be observed from any site property line for extraction operations and a perimeter setback of twenty-five feet shall be observed from any site property line for any accessory uses.

4. If materials are washed or deposited upon streets, alleys or other public property as a result of improperly controlled activities, the building official shall notify the landowner or operator to remove such materials and restore the streets, alleys or other public property to their original condition. Excessive dirt which is carried from this site onto adjoining streets shall be removed by the operator the same day in which it is deposited.

5. Where the building official finds that a quarry operation is creating an imminent danger of death, personal injury or property damage, he may order that such quarry operation be immediately suspended until the hazardous condition is removed. Notice given under this chapter shall be in writing to the owner, operator, person or agent in charge of such operation.

6. A quarry operation as permitted in this chapter does not require a grading permit as specified in Chapter 18.44 of this code;

7. The city council may adopt by resolution a schedule of fees for inspection by city departments and staff called for by this chapter.

F. Authority to Issue Citations.

1. In addition to those authorized to issue citations under this title, the following public officials shall be authorized to enforce the provisions of this chapter and shall have the power to issue Class C misdemeanor citations to any persons violating the provisions of this chapter:

a. The city engineer;

b. The assistant city engineer;

c. The subdivision and grading supervisor;

d. The construction engineer;

e. The assistant construction engineer;

f. All construction inspectors; and

g. The investigative engineer.

2. The public officials designated in subsection (G)(1) of this section are authorized to make inspections of any property necessary to enforce the provisions of this chapter.

G. Penalty. Any person violating this chapter is deemed guilty of a misdemeanor and shall be punishable by a fine not to exceed one thousand dollars. In the case of a continuing violation, each day's violation shall be deemed a separate offense.
(Ord. 16653 § 2 (part), 2007)
(Ord. No. 17442, § 26, 10-26-2010)

20.10.510 Recreational vehicle parks.

All recreational vehicle parks shall be constructed and maintained in accordance with all applicable provisions of the city code.

A. All recreational vehicle parks and extensions and additions to recreational vehicle parks shall be constructed and maintained in compliance with the following requirements:

1. A recreational vehicle park shall have a minimum of thirty recreational vehicle spaces;

2. A recreational vehicle park shall not exceed a density of twenty-five lots per acre of gross site area;

3. Each lot shall have a minimum of one thousand square feet;

4. Recreational vehicles shall be separated from each other and from all other structures by at least ten feet. For the purposes of such measurement, any accessory to a recreational vehicle, such as an awning or individual storage facility, shall be considered as part of the recreational vehicle;

5. No recreational vehicle shall be closer than twenty feet to the property line adjoining a public

street, nor closer than fifteen feet to any property line on which the abutting property residential or apartment zoning;

6. Each lot shall provide adequate support and drainage for the placement of the recreational vehicle;

7. Exposed ground surfaces in all parts of a recreational vehicle park shall be paved, covered with stone screening or other solid material, or protected with a vegetative growth that is capable of preventing soil erosion and elimination of dust;

8. The ground surface in all parts of a recreational vehicle park shall be graded and equipped to drain all surface water in a safe and efficient manner.

B. Permanent Residential Structure Requirements.

1. At each recreational vehicle park, no more than one existing residential structure may be retained or one new residential structure constructed or installed for occupancy by the owner or operator of the park.

2. An existing structure located on a recreational vehicle park may be converted to an administrative, office or community building for use by the guests of the park. A structure so converted shall meet all city code standards for public occupancy applicable to the proposed use.

C. Internal Street and Parking Requirements.

1. Internal streets and/or driveways, all traffic control devices and street name signs within a recreational vehicle park shall be privately owned, built, and maintained. Internal streets and/or driveways shall be designed for safe and convenient access to all lots and to common facilities. If any portion of the recreational vehicle park is intended for overnight occupancy only, the internal streets and/or driveways should be arranged to accommodate drive-through lots.

2. Internal streets shall be kept open and free of obstruction to allow emergency vehicles to have access to all areas of the recreational vehicle park.

3. Internal streets and/or driveways shall be constructed and maintained to specifications established by city code. They shall be kept free of cracks, holes, and other hazards. Internal streets shall be designed by a professional engineer in accordance with good engineering practices, and shall be approved by the fire chief before a construction permit is issued for the park.

4. Internal streets and/or driveways must meet requirements of the city code.

5. Dead-end streets and/or driveway lengths shall comply with fire code requirements.

6. Entrances and exits to a recreational vehicle park shall be designed for safe and convenient traffic movement from adjacent public streets onto internal streets or driveways. Entrances and exits from a recreational vehicle park shall not be through a residentially zoned district, nor require traffic movement to or from the park through a residentially zoned district.

7. On all sections of an internal street where parking is prohibited under this section, the owner or operator of the recreational vehicle park shall erect and maintain traffic control signs and street markings prohibiting parking.

8. Each internal street and/or driveway shall be provided with street lighting. Light standards shall have a height and spacing to ensure an average illumination level of not less than 0.2 foot candles.

D. Recreational Vehicle Lot Requirements. Recreational vehicle park lots shall be occupied only by recreational vehicles.

E. Utilities. Utilities shall be installed in compliance with all applicable code requirements.

F. Service and Auxiliary Building Requirements. This section shall apply to all service buildings, recreation buildings, management offices, repair shops, storage areas, sanitary facilities, laundry facilities, indoor recreation areas, commercial buildings supplying essential goods or services for park tenants, and other similar buildings in recreational vehicle parks.

1. All service and auxiliary buildings shall be located to be convenient to the recreational vehicle lots they service and shall be kept clean.

2. Each park shall contain one or more service buildings providing separate sanitary facilities for men and women.

3. No lot space shall be located farther than five hundred feet from such a service building.

4. The entrances to such buildings shall be clearly marked to show which gender the facilities serve.

5. Fixtures shall be provided in accordance with the plumbing code.

6. Each recreational vehicle park shall contain waste disposal stations for the sole purpose of removing and disposing of wastes from recreational vehicle holding tanks in a clean, efficient and convenient manner.

G. Fire Code Safety Instruction Requirements.

1. Each recreational vehicle park owner or operator shall ensure that its park staff is instructed in the use of park fire protection equipment and in their specific duties in the event of a fire.

2. The fire chief may make printed safety instructions available to all recreational vehicle park owners or operators for distribution to their guests.

H. Construction plan requirements. A construction plan shall be submitted for review and approval by the building official prior to issuance of a building permit that identifies the following:

1. The area and dimensions of the tract of land, identifying its location and boundaries;

2. The number, location, and size of all recreational vehicle lots;

3. The location, width, and specifications of driveways, roadways and walkways;

4. The location and details of lighting, public telephones, and electrical and gas systems;

5. The location and specifications of water and sewer lines and sewer service riser pipes;

6. The location and specifications of all buildings constructed or to be constructed within the park;

7. Existing and proposed topography of the park;

8. The location of fire mains including the size of the main, fire hydrants, and fire extinguishment equipment, and available fire flow; and

9. Such other information as may be reasonably required by the building official in the review of the construction plan. (Ord. 16653 § 2 (part), 2007)

(Ord. No. 17442, § 27, 10-26-2010)

20.10.520 Recycling collection facilities.

A. Small Collection Facilities. Small collection facilities may be located in commercial, manufacturing and industrial zones provided they comply with the following standards:

1. Shall be established as an accessory use to a permitted commercial, manufacturing or industrial use which is in compliance with the zoning, building and fire codes of the city;

2. Shall be no larger than two thousand square feet and occupy no more than ten parking spaces, not including space that will be periodically needed for removal of materials or exchange of containers. For mobile facilities the size of the trailer shall not exceed five hundred square feet;

3. Shall be set at least ten feet from any property line and not obstruct pedestrian or vehicular circulation. However, this setback requirement may be modified by the zoning administrator following a report by the traffic engineer that a reduced setback will not obstruct visibility or create a traffic safety problem;

4. Shall accept those items defined as recyclable materials in Section 9.04.030 of this code. Used oil may be accepted as permitted by and in accordance with Chapter 15.20, which must be recycled in compliance with state and federal law;

5. Power-driven processing equipment shall be permitted, provided the equipment does not exceed the noise standards contained in Chapter 9.40 of this code;

6. Shall use containers that are constructed of durable material, covered when site is not attended, secured from unauthorized entry or re-

moval of material, and shall be of a capacity sufficient to accommodate materials collected during collection hours;

7. Shall store all recyclable material in containers or in the mobile unit vehicle, and shall not leave materials outside of containers when attendant is not present;

8. Shall be maintained free of litter and any other undesirable materials, and mobile facilities, at which truck or containers are removed at the end of each collection day, shall be swept at the end of each collection day;

9. Attended facilities located within fifty feet of a property line of an existing residential use or existing R, A, PR, SRR, RMU, PMD or NOS zoning district shall operate only during the hours between nine a.m. and seven p.m.;

10. Containers for the twenty-four-hour donation of materials shall be at least thirty feet from any property line abutting an existing residential use or an existing R, A, PR, SRR, RMU, PMD or NOS zoning district;

11. Containers shall be clearly marked to identify the type of material which may be deposited; the facility shall be clearly marked to identify the name and telephone number of the facility operator and the hours of operation, and display a notice stating that no material shall be left outside the recycling enclosure or containers;

12. Small collection facilities may have identification signs with a maximum of forty percent per side, in addition to informational signs and shall be restricted to on-premises advertising;

13. No additional parking spaces will be required for customers of a small collection facility located at the established parking lot of a primary use. However, one space will be provided for the attendant;

14. Mobile units shall have an area clearly marked to prohibit other vehicular parking during hours when the mobile unit is scheduled to be present;

15. Occupation of parking spaces by the facility and by the attendant may not reduce available parking spaces below the minimum number required for the primary use; and

16. Small collection facilities shall not be located in an area that obstructs the visibility of oncoming traffic exiting from adjacent driveways.

B. Large Collection Facilities. Where permitted in a district, large collection facilities shall comply with the following standards:

1. Facility does not abut a bridge or overpass or the property lines of an existing residential use or an existing R, A, PR, SRR, RMU, PMD or NOS zoning district;

2. Facility will be screened from the public right-of-way by operating in an enclosed building or:

a. Within an area enclosed by a screening fence having a minimum height of six feet,

b. At least one hundred fifty feet from the property line of existing residential use or existing R, A, PR, SRR, RMU or PMD zoning district, and

c. Meets all applicable noise standards required by city code;

3. Setbacks and landscape requirements shall be those provided for the zoning district in which the facility is located, or the setbacks and landscaping imposed by the city at the time of rezoning or special permit approval;

4. All exterior storage of material shall be in study containers or enclosures which are covered, secured and maintained in good condition, or shall be baled or palletized. Oil storage must be in containers complying with state and federal regulations. No storage, excluding truck trailers and overseas containers, will be visible above the height of the fencing;

5. Site shall be maintained free of litter and any other undesirable materials, and will be cleaned of loose debris on a daily basis;

6. Space will be provided on site for six vehicles or the anticipated peak customer load, whichever is higher, to circulate and to deposit recyclable materials, except where the traffic engineer determines that allowing overflow traffic above six vehicles is compatible with surrounding businesses and public safety;

7. One parking space will be provided for each commercial vehicle operated by the large recycling facility. Otherwise, parking requirements will be as provided for in Chapter 20.14 of this code;

8. Noise levels shall be in conformance with Chapter 9.40 of this code;

9. If the proposed facility is located within five hundred feet of existing residential use or existing R, A, PR, SRR, RMU, PMD or NOS zoning district, it shall not be in operation between seven p.m. and seven a.m.;

10. Any containers provided for after-hours donation or recyclable materials will be at least fifty feet from any property line of an existing residential use or existing R, A, PR, SRR, RMU, PMD or NOS zoning district, shall be of sturdy, rustproof construction, shall have sufficient capacity to accommodate materials collected, and shall be secure from unauthorized entry or removal of materials;

11. Donation areas will be kept free of litter and any other undesirable material, and the containers will be clearly marked to identify the type of material that may be deposited; facility shall display a notice stating that no material shall be left outside the recycling containers;

12. Facility will be clearly marked with the name and phone number of the facility operator and the hours of operation; identification and informational signs will meet the standards of the zone; and directional signs, bearing no advertising message, may be installed with the approval of the traffic engineer, if necessary, to facilitate traffic circulation or if the facility is not visible from the public right-of-way;

13. Power-driven processing, including aluminum foil and can compacting, baling, plastic shredding, or other light processing activities necessary for efficient temporary storage and shipment may be approved at the discretion of the director of the department of environmental services if noise and other conditions are met; and

14. The owner/operator shall obtain a permit in compliance with all applicable regulations. (Ord. 16817 §§ 7, 9, 2008; Ord. 16653 § 2 (part), 2007)
(Ord. No. 17306, § 4, 4-6-2010)

20.10.530 Resident watchmen facilities.

Dwellings for resident watchmen or property caretakers employed on the premises are permitted accessory uses, not to exceed one dwelling per site. (Ord. 16653 § 2 (part), 2007)

20.10.540 Residential manufactured home subdivision.

The purpose of this district is to provide for needed, properly planned and well-designed manufactured home subdivisions in areas where public utilities are available and to establish basic standards for the character of the use and to mitigate any adverse effect on surrounding properties.

A. In manufactured home subdivisions in the RMH district, the minimum dimension of lots and yards and the height of buildings shall be as shown in the accompanying table, and the following standards:

1. No more than one manufactured home shall be located on any one subdivisions lot;

2. Skirting shall be required on all manufactured homes;

3. All manufactured homes shall be anchored to a permanent foundation; and

4. No manufactured home shall be placed for occupancy at any location without the owner or owners first having obtained a placement permit from the building official.

Table Inset:

Land area	4 acre minimum
Lot area	4,000 square feet minimum per unit
Lot depth	90 feet minimum
Lot width	40 feet minimum
Lot coverage	50 percent maximum
Front yard	20 feet minimum

Rear yard	5 feet minimum
Side-interior lot	5 feet minimum
Side abutting street	10 feet minimum
Height	35 feet maximum

B. All areas not covered by structures or paved surfaces shall be landscaped and maintained by the owner.

C. Prior to the sale of any lots in a manufactured home subdivision, a screening fence or wall forty-two inches in height shall be installed along all boundaries of the subdivision which abut a public right-of-way (lots fronting on a public right-of-way abutting the subdivision and driveways excepted) and a screening fence or wall no less than forty-two inches in height and no more than six feet in height shall be installed along boundaries of the subdivision which abut property not included in the subdivision.

D. Fire protection facilities shall be provided in accordance with requirements of the city fire department.

E. At least one off-street parking space shall be provided on each manufactured home site. (Ord. 16653 § 2 (part), 2007)

20.10.550 Restricted residential mixed-use development.

A. Purpose. The purpose of a restricted residential mixed-use development is to create a unique environment for a hub of activity and a focal point for a given area, reflecting the identity of the area by providing a variety of land uses that coexist in a multi-use residential setting. The mix of land uses are functionally connected to create a cohesive development which facilitates new development, but also provides for the retention and integration of existing residential types and intensities. The mixed-use area shall provide for a group of land uses that meet the daily needs of the area.

B. Designation.

1. An application for a residential mixed-use development may be initiated by a property owner or group of property owners of land within the area of request, by the city plan commission, or by the El Paso city council.

2. The area of request shall be designated for mixed-use within the city's projected land use element of the adopted comprehensive plan, "The Plan for El Paso."

3. The area of request shall be wholly included in a city adopted specific study area plan for the area, which sets the written and graphic description of the concerns, objectives, guidelines, and design standards for guiding the development of the area.

The area of request shall be wholly designated as a neighborhood conservancy overlay as provided in Section 20.10.400 of this title.

There shall be no minimum site requirement for a restricted residential mixed-use development, provided, however, that it is the intent of these regulations that an area of sufficient size be developed or redeveloped symbiotically with adjacent land. Extensions to a restricted residential mixed-use development from a common boundary may be considered and shall not require a minimum site area.

C. Use Regulations. In addition to the uses permitted by the underlying zoning district, buildings, structures, or premises may be used, erected, altered or enlarged for the following uses. A special permit granted by the city should specifically enumerate which of the following uses are permitted as part of the restricted residential mixed-use development.

1. Residential dwellings, including detached single-family, two-family, attached single-family and multi-family;

2. Business and professional offices, including doctor's offices, clinics and other medical practitioners;

3. Studio for professional work or teaching of any form of commercial or fine arts;

4. Bakery;

5. Drugstore;

6. Ice cream parlor;

7. Restaurant or cafe, excluding drive-in types;

8. Grocery or convenience store;

9. Variety store;

10. Barber or beauty shop;

11. Dry-cleaning shop or laundromat;

12. Health or fitness studio;

13. Travel agency;

14. Specialty retail uses such as an antique store, art gallery, bookstore, florist, gift shop, or hobby store;

15. Community buildings and recreational facilities (publicly or privately owned);

16. Bed and breakfast establishment;

17. Boardinghouse (rooming or lodging house);

18. Commercial day care center or nursery;

19. Accessory uses customarily found in connection with any of the enumerated permitted uses.

D. Property Development Standards. Where permitted in a district, a restricted residential mixed-use development shall comply with the development standards of the underlying zoning district and as otherwise provided in this title, except as herein modified. These provisions shall apply to and be enforceable upon any new construction, reconstruction or renovation of buildings, structures, or premises made to accommodate uses permitted as part of a restricted residential mixed-use development.

1. Residential dwellings physically integrated with offices and commercial establishments within a site are permitted, and are deemed most in keeping with the objectives of this section for the development of a balanced community.

2. All permanent storage and display operations shall be conducted within a completely enclosed building or structure.

3. Off-street parking requirements contained in Chapter 20.14 (Off-Street Parking and Loading Requirements) of this title shall not be required of uses permitted in a restricted residential mixed-use development; provided, however, that where adequate area within a site is available to accommodate required off-street parking (whether wholly or partially) within a rear area of a site, such off-street parking may be provided.

4. On-premises advertising for strictly nonresidential uses within a restricted residential mixed-use development shall be restricted to wall or monument signs. One sign not exceeding thirty square feet in size shall be permitted per street frontage. The height of a monument sign shall not exceed six feet in height. Signs shall be pedestrian-oriented and shall not detract from the character of the area. On-premises advertising for a residential mixed-use development consisting of residential uses physically integrated with office and commercial uses, whether wholly or partially, shall be restricted in the same manner as described above except that the maximum sign area permitted per street frontage shall be twenty square feet.

5. No building shall exceed the height limitations of the underlying zoning district, except where it can be demonstrated that the additional height will not have a detrimental effect on the surrounding land uses or the visual pattern of the area.

6. Existing or proposed multi-story buildings that are intended for retail sales or variety stores shall be designed to allow for commercial usage on the ground floor level only, and a mix of residential types and intensities on the upper floors.

7. Uses shall be innovatively designed by means of emphasizing pedestrian orientation.

8. In addition to the landscape requirements contained in Title 18 (Buildings and Construction) of this Code, any part of the total site area not required for buildings, structures, loading and vehicular access ways, parking and utility areas, pedestrian walks, and hard surfaced activity areas shall be landscaped.

9. A minimum of one-fourth of the total site area shall be provided as open space to provide visual continuity within the area, and a variety of spaces in the streetscape. Of the open space area, no more than one-half of the area may be used for non-permeable surfaces such as parking areas or driveways.

10. The residential appearance of any portion of an existing residential building or structure within the site that is converted wholly or partially to a permitted mixed-use shall be maintained.

E. Additional requirements. In approving a restricted residential mixed-use development, the city plan commission may recommend and the city council may impose additional reasonable requirements necessary to protect the public interest and welfare of the community. In the event that the design standards of the applicable study area plan are more restrictive or impose higher (or different) standards than the requirements of this title, the design standards of the applicable study area plan shall govern. Copies of adopted study area plans are on file in the office of the planning official. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17442, § 28, 10-26-2010)

20.10.555 Urban reserve district (URD).

A. When development is proposed on land zoned URD, the land shall be developed in accordance with provisions of Title 21 — SmartCode. Prior to development URD property will be rezoned SmartCode.

B. Utility Facilities and Thoroughfares within an URD Zone. Land zoned URD may be used as necessary for utility facilities and thoroughfare construction projects. Permissible uses and uses allowed by special permit are identified in Appendix A. Any thoroughfare construction projects shall comply with the Institute for Transportation Engineers (ITE) Designing Walkable Urban Thoroughfares: A Context Sensitive Approach, An ITE Recommended Practice as amended.
(Ord. No. 17547, § 3, 5-3-2011)

20.10.557 Utility green space.

A. The purpose of these regulations is to protect and conserve lands designated as utility green space while still allowing certain necessary water, wastewater and stormwater utility systems as secondary purposes to the area. Utility green space serves to:

1. Add to the existing open space system and enhance the ecological, hydrological, and recreational vitality of the existing Franklin Mountains State Park and foothill areas;

2. Promote planning and growth that emphasizes sustainability in our built and natural environments;

3. Promote careful management to reduce environmental impacts to the water, waste water and stormwater systems in the community;

4. Protect healthy ecosystems through environmental management and measurement by:

a. Reducing impervious cover that contributes to degradation of water resources;

b. Reducing rainfall pollutant loads to streams and other water resources;

c. Reducing potential pressure to encroach on utility resource buffer areas;

d. Reducing soil erosion potential by reducing the amount of clearing and grading required;

e. Promoting erosion and sediment control;

f. Reducing capital cost of utility infrastructure;

g. Reducing cost of stormwater management by concentrating runoff and reducing volumes;

h. Promote a high quality, sustainable utility system that conserves and protects land, watershed, wastewater, reclaimed water and water resources;

i. Optimize best practices in planning, engineering and management that will protect the environment; and

j. Protect the ecological and geological health and function of green space.

B. Where utility green space is designated, a conservation covenant may be required to provide further protections to the area. Any conveyance of the utility green space to the Texas Parks and Wildlife Department shall incorporate the requirements of this section as a condition of donation and acceptance of the land.

C. In addition to allowing use of the land for water, waste water, and stormwater utility systems, other passive recreational uses and activities customarily found in conserved natural areas are also permitted (such as trail corridors and trailheads, scenic outlooks, and pedestrian walking and jogging paths). Notwithstanding the allowable uses and activities described in this section, the mandating restriction of uses and activities permitted on land within a utility green space designated property shall be as set forth in the conservation covenant, where applicable. The conservation covenant shall enumerate the use(s) permitted and prohibited, shall detail how use of the land shall be authorized pursuant to this section, and shall include a management plan for maintenance, monitoring and enforcement of these use provisions. In no case shall a use not satisfying the general intent of these regulations be permitted as a provision of the conservation covenant.

D. Any property designated as utility green space shall be subject to the development standards of the El Paso City Code as part of construction, reconstruction, or alteration of any permitted use, and any additional development standards as may be enumerated in the conservation covenant.

E. For purposes of this section, water, waste water, and stormwater utility systems shall mean the systems of the city as they may be constructed or now exist and may be improved, added to, or extended hereafter, there being included in such term all water, sewer and stormwater facilities now or hereafter owned or operated by the El Paso Water Utilities - Public Service Board, and including all real and personal property comprising any part of or used or useful in the operation of the water, waste water, and stormwater facilities of the city. Specific facilities shall include, but not be limited to, any facility or structure that stores, pumps, conveys, treats, or disposes of potable water, reclaimed water, wastewater, and/or stormwater and the associated residuals with the appropriate resource buffer zone. In addition, other public utility facilities which serve to distribute and transmit electrical power, gas and other essential service necessary to the water, waste water, and stormwater utility systems are also authorized.

F. Utility green space designated within a development shall not be considered a park under any circumstances, nor shall acceptance of a dedication and maintenance by the city be required. (Ord. No. 17904, § 2, 11-6-2012)

20.10.560 Restaurants, drive-in.

Drive-in restaurants are not permitted in a C-l or mixed use zoning district within two hundred feet of a residential use or an R-l, R-2, R-2A, R-3, R-3A, R-4, R-5, PR-I, PR-II, PMD or NOS zoning district. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17306, § 4, 4-6-2010)

20.10.570 Retail and service facilities.

Retail and service uses such as newsstands, cafeterias and retail stores are permitted inside an office building when primarily for the use of occupants thereof and occupants or other buildings in the development. (Ord. 16653 § 2 (part), 2007)

20.10.580 Reverse vending machines.

A. Reverse Vending Machine(s). Reverse vending machine(s) may be permitted in all commercial, manufacturing and industrial zones; provided, that they comply with the following standards:

1. Shall be established as an accessory use to a permitted commercial, manufacturing or industrial use and is in compliance with the zoning, building and fire codes of the city;

2. Shall not occupy required parking spaces for the primary use;

3. Shall occupy no more than one hundred fifty square feet of floor space per installation, including any protective enclosure, and shall be no more than eleven feet in height;

4. Shall be constructed and maintained with durable material;

5. Shall be clearly marked to identify the type of material to be deposited, operating instruc-

tions, and the identity and phone numbers of the operator or responsible person to call if the machine is inoperative;

6. Shall have a cumulative sign area not exceeding fifty square feet per machine, exclusive of operating instructions and shall be restricted to on-premises advertising;

7. Shall be maintained in a clean, litter-free condition on a daily basis;

8. Shall be illuminated to ensure comfortable and safe operation if the facility operates during nighttime hours;

9. Reverse vending machines shall not be located in an area that obstructs the visibility of traffic entering or exiting adjacent driveways. (Ord. 16817 § 10, 2008; Ord. 16653 § 2 (part), 2007)

20.10.590 Satellite receiving dishes and antennas.

Satellite receiving dishes measuring more than one meter in diameter and other satellite receiving antennas shall comply with the following:

A. In residential and apartment districts:

1. The following setbacks shall be observed:

a. Four feet from interior lot lines,

b. If on a corner lot: the side street yard requirement for buildings in the district in which it is located,

c. If in the rear yard: five feet from the rear lot line,

d. If in the front yard: sixty feet from the front lot line,

e. If in side yard: sixty feet from the front lot line and the side yard requirement for buildings in the district in which it is located;

2. The following standards shall be observed:

a. Any such antennas plus other permitted accessory structures shall not occupy more than forty percent of the yard in which located,

b. When detached structurally from the main building the maximum overall height of any such antennas from ground level shall not exceed twenty-four feet,

c. When roof-mounted or attached to the main building, any such antennas shall conform to the height standard of the district in which located. The installation of any roof-mounted dish or antenna and those attached to the main building exceeding twenty-four feet in height shall be designed or checked and approved by a registered professional engineer or a registered professional architect.

B. In commercial, manufacturing and industrial districts:

1. The following standards shall be observed:

a. The antenna may be located anywhere within the buildable area of the lot, with no part of the antenna projecting beyond such buildable area or onto the twenty-foot visibility triangle,

b. When installed in conjunction with commercial or public radio and television broadcasting and microwave receiving facilities, a special permit shall be required except where the commercial or public radio and television broadcasting and microwave receiving facility is a permitted use by special permit or otherwise.

C. All design, installation and construction of any such antennas shall comply with the building code of the city.

D. No form of advertising or other identification is allowed on the dish or framework other than manufacturer's identification plates or stamps not exceeding one square foot in area.

E. In historic districts, must additionally comply with Chapter 20.20 (Historic Preservation). (Ord. 16653 § 2 (part), 2007)

20.10.600 Secondary manufactured homes (ranch-farm district only).

Secondary manufactured home units are permitted in the ranch and farm zoning district on a site of at least one acre, provided the following conditions are met:

A. A placement permit is obtained from the building official;

B. Manufactured home meets requirements of National Manufactured Home Construction and Safety Standards;

C. All additions to the manufactured home shall be engineered and built to comply with currently applicable manufactured home construction standards;

D. Manufactured home does not exceed a height of sixteen feet;

E. Manufactured home shall have nonflammable skirting around its perimeter to screen its wheels and undercarriage from view;

F. Fire protection facilities shall be provided as required by the fire department;

G. A setback of twenty feet shall be maintained from any building or accessory structure;

H. A setback of twenty-five feet shall be maintained from any property line;

I. Such manufactured home shall be used only as a residence, and in no case shall be used for rental or commercial purposes; and

J. A special permit granted pursuant to this section shall be for a period of two years. The city council may, upon application of the owner, approve a one-year extension of this time period, but in no case shall the total time period exceed a maximum of three years. The zoning board of adjustment shall not have jurisdiction to grant any variance or exception from the requirements of this subsection. (Ord. 16653 § 2 (part), 2007) (Ord. No. 17235, § 3, 11-10-2009; Ord. No. 17442, §§ 21, 30, 10-26-2010)

20.10.610 Self-storage warehousing.

In A-1, A-2 and A-3 (Apartment), A-M (Apartment-Manufactured home), A-O (Apartment/Office), A/3-0 (Apartment/Office High Density), RMU (Residential Mixed Use), GMU (General Mixed Use), C-1 and C-2 (Commercial) Districts the following conditions apply:

A. A minimum site area of two acres shall be required, unless adjacent to and abutting a minimum of four acres zoned C-1, C-2, C-3 or C-4, then the minimum site area shall be one acre with an average lot width of not less than two hundred feet and an average lot depth of not less than two hundred feet.

B. Individual storage spaces shall not exceed four hundred square feet in area and fourteen feet in height, except in the case of storage spaces for RVs and motor homes, which shall not exceed twenty feet in width and sixty feet in length.

C. A six foot high screening wall shall be required along all property lines abutting residential or apartment uses or districts.

Additionally, the following conditions shall apply in the C-5 (Commercial) Districts:

A. A self-storage warehouse shall not occupy the first floor of a building. Permitted activities for the first floor shall be limited to the retail portion of the operation where customer transactions occur and/or in combination with another permitted use in the zoning district.

B. The portion of the building containing the self-storage warehouse shall be limited to no more than eighty percent of the total gross floor area.

C. Self-storage warehouses shall only be permitted in existing structures. If no structure exists, then self-storage warehouses shall conform with the design requirements of Section 20.10.280.C, infill development. (Ord. 16653 § 2 (part), 2007) (Ord. No. 019734, § 3, 5-28-2025)

20.10.620 Sexually oriented businesses.

A. No person shall own, operate or conduct any business in an adult bookstore, adult motion picture theater or nude live entertainment club within one thousand feet of the following:

1. A church;

2. A public or private elementary or secondary school;

3. A nursery school, kindergarten, child care center, day nursery or day care center;

4. A university, college, vocational or business school;

5. A boundary of any residential district;

6. A public park adjacent to a residential district;

7. The property line of a lot devoted to any residential use;

8. Another adult bookstore, adult motion picture theater or nude live entertainment club.

B. For the purposes of this section, the following definitions shall apply:

1. Conduct Any Business. Any person who does any one or more of the following shall be deemed to be conducting business:

a. Operates a cash register, cash drawer or other depository on the adult business premises where cash funds or records of credit card or other credit transactions generated in any manner by the operation of the establishment or the activities conducted therein are kept;

b. Displays or takes orders from any customer for any merchandise, goods, entertainment or other services offered on the adult business premises;

c. Delivers or provides to any customer any merchandise, goods, entertainment or other services offered on the adult business premises;

d. Acts as a door attendant to regulate the entry of customers or other persons into the business premises; and

e. Supervises or manages other persons in the performance of any of the foregoing activities on the business premises.

2. "Entertainment" means any act or performance, such as a play, skit, reading, revue, pantomime, scene, song, dance, musical rendition or striptease, whether performed by employees, agents, contractors or customers. The term "entertainment" shall also mean bartenders, waiters, waitresses or other employees exposing "specified anatomical areas" or engaging in "specified sexual activities" in the presence of customers.

3. "Operator" means the manager or other natural person principally in charge of an adult business regulated in this section.

4. "Owner" or "owners" means the proprietor if a sole proprietorship, all partners (general and limited) if a partnership, or all officers, directors and persons holding ten percent of the outstanding shares if a corporation.

C. For the purposes of this section, measurements shall be made in a straight line, from the nearest portion of the building or structure used as a part of the premises of a regulated use to the nearest property line of any uses listed in subsection A of this section.

D. Any adult bookstore, adult motion picture theater or nude live entertainment club lawfully in existence on February 10, 1987, and not in compliance with the zoning provisions of the city code, shall be deemed a nonconforming use and shall comply with all of the provisions of the zoning code regulating such uses by February 10, 1988. In the case of any such uses being located within one thousand feet of each other, the use first established and continually operating shall be allowed to continue to operate at its location, provided such use complies with all other provisions of the zoning code.

E. The subsequent establishment of any use set forth in subsection A of this section within one thousand feet of a previously existing use regulated by this section shall not render such use a nonconforming or unlawful use.

F. The regulations in this zoning code of adult bookstores, adult motion picture theaters and nude live entertainment clubs are intended to be land use controls meant to regulate the harmful secondary effects of such uses only, and shall not be construed as being intended to limit access by adults to sexually oriented material, activity or expression, protected by the First Amendment of the United States Constitution.

G. Signage. The owner or operator of an adult entertainment use may erect, construct and maintain signs allowed by and conforming with Chapter 20.18 of this Code.

H. If any section, subsection, clause or any portion of the regulations in this zoning code regulating adult bookstores, adult motion picture theaters and nude live entertainment clubs is held to be invalid or unconstitutional by the decision of any court of competent jurisdiction, such decision shall not affect the validity of the remaining portions of this Code regulating such uses. (Ord. 16653 § 2 (part), 2007)

20.10.630 Storage of supplies (in connection with a permitted use).

Storage of supplies, merchandise, equipment or goods normally carried in stock, used or produced in connection with a permitted use is allowed within a building, or shall be screened from any abutting public street or other abutting property by a solid masonry wall or chain link fence with slats not less than six feet in height. (Ord. 16653 § 2 (part), 2007)

20.10.640 Swimming pools and spas.

A. In any district where permitted as an accessory use, unenclosed swimming pools and spas may occupy a required rear or side yard, provided they are not located closer than five feet to a rear or side lot line. A walk space at least four feet wide

shall be provided between pool walls and protective fences and building or other walls. A deck surrounding at least sixty-five percent or more of the swimming pool or spa shall be provided, however, in no case shall other structures restrict emergency access or create above deck structures that may be used as diving platforms or create other safety or sanitary hazards.

B. Swimming pools and spas listed under permitted uses in any district shall comply with the yard and other standards of the district in which located.

C. Every residential outdoor swimming pool and spa shall comply with the requirements of the Residential Code, Chapter 18.10.

D. Every public swimming pool and spa shall comply with the requirements of Chapter 9.48 of this Code. (Ord. 16653 § 2 (part), 2007)

20.10.650 Temporary buildings or structures (incidental to construction).

Temporary buildings, or structures, including mobile or relocatable home office or storage units, the uses of which are incidental to construction operations during development being conducted on the same tract or subdivision are permitted and shall be removed upon completion or abandonment of such construction, or upon the expiration of a period of four years of (from) the time of erection of such temporary buildings, whichever is sooner. (Ord. 16653 § 2 (part), 2007)

20.10.660 Temporary buildings or structures (incidental to sales or rental).

Temporary buildings or structures, including a mobile or relocatable office unit for use as sales or rental office for an approved real estate development or subdivision, located on the same tract as the real estate development or subdivision are permitted and shall be removed upon completion or abandonment of the project or upon the expiration of a period of four years, whichever is sooner. (Ord. 16653 § 2 (part), 2007)

20.10.670 Temporary sales stands.

Temporary sales standards for the sale of farm or ranch products produced on the premises, provided only one such stand may be used on each farm or ranch, and the stand shall contain not more than six hundred square feet of floor space and shall be located not less than thirty feet from the adjoining property and not less than forty feet from the roadway, and temporary off-street parking for at least five vehicles is provided, the parking area to meet the requirements of Chapter 20.14 of this Code. (Ord. 16653 § 2 (part), 2007)

20.10.680 Temporary uses.

A. Intent and purpose. The intent of this section is to accommodate reasonable requests for interim or temporary uses when such activities are desirable for the community, or are temporarily required in the process of establishing a permitted use or constructing a public facility. Temporary uses allowed under this section shall be consistent with the health, safety and general welfare of persons residing and working in the community, shall be conducted so as not to cause any detrimental effects on surrounding properties and the community, and shall not violate any other ordinance or state and federal regulations.

B. Application requirements for a temporary use permit.

1. The application and supporting documents for a temporary use permit shall be prepared in accordance with the specifications outlined below.

a. Submit a complete building permit application.

b. Submit a complete site plan to include the following items:

(1) The location of all temporary structures proposed property and permanent structures on the property shall be shown on the site plan.

(2) The location of any tie downs or guy wires within the property.

(3) The internal parking layout to include all driveways within the property.

(4) If structures are proposed to be located within a parking lot, include the parking calcula-

tions showing that the proposed temporary use will not reduce the minimum required parking for all primary permanent existing uses located on the site.

(5) Location of sign(s), screening walls, fencing and electric meter locations or temporary power sources if applicable.

(6) The setbacks from property lines shall be shown on the site plan.

2. All temporary use permits are valid for the period and location specified in the permit issued for the temporary use, however for no longer than six months within the same calendar year at which time it is deemed expired.

3. Individual temporary structures as part of the permit shall not exceed a total of one hundred square feet in size and shall be accessory to the primary use on the lot.

4. Applicant shall have the approval of the plan review building official.

5. If use is conducted on property that is owned by a separate owner, a notarized letter from the property owner or an authorized agent, granting permission to the applicant to use the property for the temporary use and permission to use any restroom facilities located on the property.

6. Restroom facilities are required. If restroom facilities are unavailable on the site, a portable facility may be used.

7. Any tents, membrane structures or canopies used in conjunction with a temporary use permit shall comply with all other provisions of the city code.

8. Payment of established fee for a temporary use permit.

9. The site shall be cleaned up and returned to its original state as found by the applicant. Clean up shall begin within a twenty-four-hour period after the applicant has stopped using the site for the permitted temporary use.

10. The use shall not be conducted between the hours of 10:00 p.m. and 8:00 a.m. except where specifically allowed under the permit issued.

11. Temporary structures shall be setback a minimum of ten feet from the front property line and shall not hinder the visibility sight triangle.

C. Temporary uses allowed.

1. Seasonal sales of food items. Applicant shall obtain the approval of the director of public health. This use is only allowed in a ranch and farm or a developed lot located in C-1 to C-5 (Commercial), M-1 (Manufacturing) and GMU General Mixed Use zone districts. This use includes:

a. Seasonal sales of food items.

b. Farmers markets.

c. Mobile structures for seasonal sales of food items.

2. Seasonal sales of non-food items. This use is only allowed in a developed lot located in C-1 to C-5 (Commercial), M-1 (Manufacturing) and GMU General Mixed Use zone districts. This use includes:

a. Christmas Tree lots.

b. Pumpkin sales lots.

c. Sales from mobile structures.

d. Temporary mobile structures.

e. Mobile structures for temporary sales.

3. Temporary places of assembly. This use is allowed on a developed lot and only on an undeveloped lot that complies with parking regulations for temporary lots in Chapter 20.14 (Off-Street Parking, Loading and Storage) and Title 30 of the Texas Administrative Code Chapters 101 and 111. These uses shall be permitted in the following zoning districts: R-F (Ranch and Farm), C-1 to C-5 (Commercial), M-1 (Manufacturing), GMU (General Mixed Use) and P-I (Planned Industrial). Applications for temporary places of assembly will be required to obtain all necessary permits. Temporary places of assembly include the following uses:

a. Haunted house.

b. Fair, circus, rodeo, festival, carnival or concert operated at a location other than a stadium,

auditorium or other public assembly facility designed to accommodate such an event. These uses must meet all of the following requirements:

(1) The property in which the temporary use will operate is at least three acres or more in size.

(2) There shall be at least a buffer zone of one thousand five hundred feet between the area, in which the use will operate, and any residential zoning district or use. This measurement will be measured from the outermost footprint of the event including all required parking.

(3) The temporary event shall comply with all of the parking requirements of Title 20.

(4) Additional requirements:

(a) Any property zoned R-F is limited to hosting these uses to three times per calendar year.

(b) Events held on property zoned R-F where an applicant estimates that the event will have more than five hundred people in attendance at peak hours will require approval from city council prior to the issuance of a temporary use permit.

4. Temporary real estate offices or rental offices. This use requires the placement of a Texas Industrialized building. The use may include a sales/rental office for an approved real estate development or subdivision. The use must be located on the same property as the development or subdivision. The use must be removed after completion or abandonment of the project or after a four-year period, whichever is sooner.

5. Temporary tents, membrane structures or canopies. The applicant must provide proof that the structure is of flame resistant material or is treated with a flame retardant which meets the requirements of NFPA 701. Tents in excess of two hundred square feet, or a canopy in excess of four hundred square feet will require review and approval from the fire department and an operational permit will be required from the fire marshal's office, except that the following temporary uses will not require an operational permit:

a. Tents used exclusively for recreational camping purposes.

b. Fabric canopies and awnings open on all sides which comply with all of the following:

(1) Individual canopies shall have a maximum size of seven hundred square feet (65 m2).

(2) The aggregate area of multiple canopies placed side by side without a fire break clearance of twelve feet (3.7 m) shall not exceed seven hundred square feet (65 m2) total.

(3) A minimum clearance of twelve feet (3.7 m) to structures and other tents shall be provided.

D. The following temporary uses may be permitted without the issuance of a temporary permit:

1. Temporary structures such as construction sheds, canopies, tents and fences used in construction work in conjunction with a building or grading permit. Such structure shall be allowed for a limited amount of time and shall be completely removed upon the completion of the work authorized by the building or grading permit.

2. Temporary structures such as construction sheds, canopies, tents and fences used in construction work in conjunction with a public works or city, county, state or federal project. Such structure shall be allowed for a limited amount of time and shall be completely removed upon the completion of the work authorized by the building or grading permit. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17235, § 3, 11-10-2009; Ord. No. 17314, § 1, 5-4-2010; Ord. No. 17442, §§ 21, 31, 10-26-2010; Ord. No. 17557, § 3, 5-17-2011; Ord. No. 17757, § 1, 3-20-2012; Ord. No. 17927, § 1, 1-15-2013; Ord. No. 18371, § 2, 6-16-2015; Ord. No. 18506, § 1, 5-24-2016; Ord. No. 18663, § 1, 4-18-2017)

20.10.690 Tennis clubs.

Where permitted in a district, tennis clubs shall comply with the following requirements:

A. Dimensional Standards. At any tennis club developed pursuant to the provisions of this section, buildings hereafter erected or structurally altered shall have:

1. A front yard on any street equal to that required in underlying zoning district. Such front yard shall not be used for the parking of vehicles,

2. A rear yard equal to that required in underlying zoning district, or twenty-five feet in depth, whichever is greater,

3. Side yards equal to that required in underlying zoning district, or fifteen feet in depth, whichever is greater,

4. A building height not in excess of two and one-half stories,

5. An average lot width of not less than two hundred feet,

6. A lot or site area of not less than two acres,

7. Off-street parking as required in Chapter 20.14;

B. Permitted accessory uses:

1. Pro shop,

2. Handball courts,

3. Restaurant or bar or restaurant or combination thereof,

4. Locker room,

5. Sauna bath,

6. Swimming pool. (Ord. 16653 § 2 (part), 2007)

20.10.695 Transfer of development rights.

A. Purpose.

1. In order to provide regulatory incentives to permanently restrict urbanization of certain environmentally sensitive areas, or to allow certain vested projects to be relocated to another appropriate location, this section establishes two types of transfer of development rights. In all cases, the transfer of development rights from sending to receiving parcels shall be at the voluntary request and requires a special permit application of the landowners of both parcels.

a. Environmentally sensitive areas. A special permit for transfer of development rights (TDR) shall be permitted when approved by the El Paso City Council pursuant to the provisions of this section.

b. Vested projects. When a determination as to project vesting has been made pursuant to Section 1.04.070 of this Code, a property owner may be allowed to relocate that project to another appropriate parcel of land, when approved by the El Paso City Council pursuant to the provisions of this section.

2. For purposes of this section, environmentally sensitive areas shall include areas designated as such by local, state or federal documentation. If governmental documentation cannot be produced with an environmentally sensitive designation that meets the following criteria, then the city engineer and director of environmental services may evaluate the property and determine if it meets one or more of the following characteristics. If the city engineer and director of environmental services determine it is not an environmentally sensitive area as defined herein a special permit application may not be processed.

a. Areas with significant natural features;

b. Areas which enhance the open space and aesthetic qualities of the land;

c. Areas that protect agricultural resources;

d. Areas necessary for the preservation of natural resources;

e. Areas containing habitats for threatened or endangered species;

f. Wetlands and wetland transition areas;

g. Aquifer recharge and discharge areas;

h. Archaeological sites;

i. Waters of the state, which includes arroyos; or

j. Other areas or features that have been designated for protection due to ecological integrity, balance or character.

3. This section establishes procedures for transferring development rights from sending to receiving parcels, to allow for increased densities in the receiving parcels and reduced densities in the sending parcels, for environmentally sensitive lands, and to allow for the transfer and development of vested projects on land appropriate for such uses.

4. The TDR system for environmentally sensitive lands is based on the theory of carrying capacity. In other words, a finite amount of development is permitted in the areas within the sending and receiving parcels. A transfer of develop-

ment rights does not increase the cumulative density possible in the sending and receiving parcels. The TDR for vested projects is based on the theory that certain projects may have become vested in their development plans, but may be more appropriately located on different property than that for which the initial permit was received.

5. A special permit application for transfer of development rights shall be subject to the requirements of Chapter 20.04, Article V of this title.

B. Sending Parcels.

1. Environmentally sensitive lands: Property proposed as a sending parcel may be located in any zoning district within the El Paso city limits and shall meet all of the following criteria:

a. The property proposed as a sending parcel is within an area designated as environmentally sensitive as described in subsection (A)(2);

b. One hundred percent of the development potential of the sending parcel shall be transferred. For purposes of this subsection, "development potential" means the density permitted by the underlying zoning district of the sending parcel;

c. The property is physically and legally developable at the potential of the underlying zoning district, as certified by a registered professional engineer;

d. All of the property in the proposed sending parcel is protected through recording of a conservation easement or otherwise restricted from any future development;

e. Documentation of compliance with the requirements for eligibility as a sending parcel shall be submitted with the application for a special permit requesting a transfer of development right from the sending parcel and an increase in density in the receiving parcel.

2. Vested Projects. Property proposed as a sending parcel may be located in any zoning district within the El Paso city limits and shall meet all of the following criteria:

a. The project has requested and received a letter of vested rights determination;

b. The vested project is an allowed use within the zoning district on which the receiving parcel is located, or would have been allowed under the ordinances in effect at the time of issuance of the vested determination letter;

c. The vested project as planned, developed, and depicted on applications for all permits, for the receiving parcel substantially conforms to the project for which the vested rights determination letter was granted. Consideration will be given for changes in plans necessitated by the topography or other features of the receiving parcel;

d. Documentation of compliance with the requirements for eligibility as sending and receiving parcels shall be submitted with the application for a special permit.

e. Exemption from special permit. A Vested Project will not be required to secure approval of a special permit in accordance with this Section, under the following conditions:

(1) The requestor holds a valid determination of project vesting under Section 1.04.070 of this Code; and

(2) The City has a real property interest in the sending or receiving parcel; and

(3) Council has determined the following as part of the real property transaction:

(a) That the proposed use being transferred from the sending parcel to the receiving parcel, is identified as the Project in the determination of project vesting; and

(b) That the proposed use is an appropriate land use on the receiving parcel and is in conformance with the Plan for El Paso; and

(c) That the transfer of land and proposed use of the land is in the best interests of the public health, safety and welfare.

(d) The findings as to the receiving parcel listed above, and the identification of the sending parcel, removing the vested project status, shall be memorialized in a document, approved by the City Attorney and signed by the City Manager, that may be recorded in the county deed records.

Further, a determination of project vesting includes an exemption from special permit require-

ments if the zoning in place at the time of the first permit application, which resulted in a determination of project vesting, did not require a special permit.

C. Receiving Parcel Designation.

1. A parcel of land which receives a special permit for development rights to allow increased density pursuant to this section shall be referred to as a "receiving parcel."

2. No development rights shall be transferred to any parcel of land that is not located in a receiving district and so designated in the ordinance approving the special permit, or unless the receiving parcel is exempt under Section B.2.e.

3. Environmentally sensitive land: Only property zoned S-D (Special Development), U-P (Union Plaza), PR-I Planned Residential I), PR-II (Planned Residential II), RMU (Residential Mixed Use), and GMU (General Mixed Use) may be designated as receiving districts for purposes of transferring severable development rights from environmentally sensitive lands.

4. Vested Projects: Property in any commercial or the M-1 manufacturing districts may be designated as receiving parcels for transferring development rights and standards in vested projects, subject to City Council review of the special permit, or unless the receiving parcel is exempt under Section B.2.e.

5. The development rights attach to the receiving parcel upon approval of the special permit, if required, or upon the date of closing of the sale or transfer of property if the receiving parcel is exempt under B.2.e., and upon recordation of a conservation easement or other documentation restricting the development of the sending parcel for environmentally sensitive lands, and the inclusion of site plans and other documentation required for vested projects, if required for a special permit, and shall not be subsequently transferred to another property.

D. Special Permit Required.

1. No development rights shall be used on the receiving parcel until a special permit has been submitted by the property owners of both the sending and receiving parcel and approved as provided herein, and in accordance with the notice and hearing requirements of this title.

2. The special permit shall include a finding by the city council that the transfer of development rights will promote the purposes of this section and title.

E. Evidence of Restriction Required for Development Approval for Environmentally Sensitive TDRs.

F. Restrictions for Development Approval for Vested Projects. As of the effective date of the ordinance for TDR for a vested project, the project at the receiving parcel may be completed in accordance with the regulations that were in effect as of the date of the vested rights determination. Any rights to such regulatory applicability in the sending parcel will terminate as of the effective date. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 18349, §§ 1—5, 4-28-2015)

20.10.700 TV and radio broadcasting antennae.

A. In Residential, Apartment and Commercial Zoning Districts. Ground-mounted radio or television broadcasting antenna support structures with antennas and equipment storage facilities shall comply with the following standards:

1. The antenna support base shall be set back one foot for each one foot of height from abutting residential districts, measured from the antenna support base to the property line;

2. The radio or television broadcasting antenna support structure shall conform with FCC and FAA height regulations within a residential zone;

3. The following must accompany a request for a special permit:

a. A nonionizing electromagnetic radiation (NIER) report, in a format acceptable to the FCC,

b. A structural engineering report for the antenna support,

c. A detailed site development plan showing the antenna, supporting structures and appurtenant equipment in relation to the existing surroundings,

d. Verification letters that an FCC application has been submitted and FAA approval has been obtained;

4. Collocation or installation of additional antennas on an existing antenna support structure shall be permitted after review and approval by the building official of a structural recertification report, prepared and sealed by a licensed professional engineer, and an updated NIER emissions report;

5. Increase in elevation of an existing antenna support structure shall be permitted, so long as the setback and maximum height limitations are complied with, after review and approval by the building official of updated structural and NIER emissions reports;

6. Existing nonconforming antenna support structures, unable to comply with current setback limitations shall be prohibited from any increase in elevation.

B. In manufacturing and Industrial Zoning Districts. Ground-mounted radio or television broadcasting antenna support structures, with appurtenant antennas and equipment storage facilities shall comply with the following standards:

1. The antenna support base shall be set back from any residential district or residential use one foot for each one foot of height, measured from the antenna support base to the property line. The maximum height limits shall be set by the Federal Communication Commission (FCC) and Federal Aviation Administration (FAA) license requirements;

2. The following must accompany a request for a building permit:

a. A detailed plan showing the antenna, support structures, and appurtenant equipment in relation to the existing surroundings including fencing, off-street parking, and access from the antenna support to the nearest public access,

b. A nonionizing electromagnetic radiation (NIER) report, in a format acceptable to the FCC,

c. A structural engineering report for the antenna support,

d. Verification letters that an FCC application has been submitted and FAA approval has been obtained;

3. Collocation or installation of additional antennas on an existing antenna support structure shall be permitted after review and approval by the building official of a structural recertification report prepared and sealed by a licensed, professional engineer;

4. Increase in elevation of an existing antenna support structure shall be permitted, only when the setback limitations are complied with, after review and approval by the building official of updated structural and NIER emissions reports. Existing nonconforming antenna support structures, unable to comply with current setback limitations shall be prohibited from any increase in elevation.

5. The applicant shall provide a six-foot high fence or screening wall around the wall around the base of a self-supporting or guyed mast antenna support, and appurtenant equipment storage facilities, to provide for security. The gate providing access to the antenna support shall remain locked at all times, except when being used for access by maintenance personnel;

6. The access driveway and one off-street parking space, for use by maintenance vehicles, must be paved covered with an alternative all-weather material to provide for a dust-free driving surface as approved by the director of the city development department or other designee of the city manager. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17442, § 29, 10-26-2010; Ord. No. 17801, § 6, 6-5-2012, eff. 6-11-2012)

20.10.710 TV and radio receiving antennae.

A permitted accessory use in all districts, residential-type television or radio receiving antennae, roof-mounted, shall not exceed twenty feet in height above the highest point of the roof. (Ord. 16653 § 2 (part), 2007)

20.10.720 Unenclosed parking space shelters.

Where specifically listed as a permitted accessory use in a district, unenclosed parking space shelters may be erected as shelters for motor vehicles in conformance with the following:

A. The structure shall not encroach into the required front yard or side street yard;

B. No part of the structure shall be closer than one foot from an adjacent property line within a required side yard or rear yard, except that when the property abuts an R-1, R-2, R-2A, R-3, R-3A, R-4 and R-5 zoned property or a single-family attached dwelling in any other zone existing at the time of erection of the parking space shelter, the structure shall not be closer than ten feet from the adjacent property line;

C. The height, measured from the floor of the parking space to the ceiling or lowest clearance, shall not exceed ten feet, and provided that the overall height shall not exceed eleven feet;

D. The structure shall cover only the affected parking space or spaces. It shall not encroach onto the parking lot access driveways and shall not exceed a depth of twenty feet over each parking space;

E. All water runoff shall be controlled to drain into the property on which the structure is located. (Ord. 16653 § 2 (part), 2007)

20.10.730 Utility facilities.

Utility facilities shall comply with the following:

A. Minor Utility Facilities. Minor utility facilities shall be exempt from all requirements of this title and shall be a permitted use in any zoning district of the city, except the natural open space zoning district, where such facilities shall be permitted by special permit in accordance with Section 20.08.

B. Communication Utility Facilities and Water and Wastewater Utility Facilities. Communication utility facilities and water and wastewater utility facilities shall be permitted uses in any zoning district of the city and shall be exempt from all requirements of this title, except as follows:

1. Facilities with less than or equal to three hundred square feet of floor area:

a. No off-premises advertising shall be permitted;

b. A minimum setback of ten feet from any property line abutting a public or private street right-of-way shall be provided;

2. Facilities with a floor area greater than three hundred square feet:

a. No off-premises advertising shall be permitted;

b. The communication utility facility or water and wastewater utility facility shall be required to meet all requirements of the base zoning district.

3. Communication utility facilities are not permitted in the natural open space zoning district.

C. Major Utility Facilities. Major utility facilities shall be permitted by special permit in any zone, and shall be required to meet all requirements of the base zoning district.

D. The requirements of this section shall apply to a public utility or a privately owned and operated utility facility, as otherwise herein defined and regulated, and any other applicable standards contained within this Code. (Ord. 16653 § 2 (part), 2007; Ord. No. 18531, § 6, 6-28-2016)

20.10.740 Vehicles.

A. Not more than one commercial vehicle shall be allowed as accessory to a dwelling. Such commercial vehicle shall not have a manufacturer's rated carrying capacity exceeding two tons, shall not exceed twenty-six feet in length, or seven feet eight inches in width or nine feet in height. Except for minor emergency repairs, maintenance and repair of such commercial vehicle on premises, such as would constitute the use of premises for an automotive repair garage, shall not be permitted.

B. No person shall dismantle, repair or otherwise perform any work upon any vehicle, ma-

chine, motor, or other similar device, other than to effect minor emergency repairs to a motor vehicle, on any property in an apartment or residential zoning district unless such activity is incidental to a permitted or conditionally permitted use and is conducted within a building.

C. No vehicle (except those upon which minor emergency repairs are being effected), machine, motor, appliance or other similar device from which any part has been removed, or which is inoperable for any reason, including junked or wrecked motor vehicles, shall be stored, maintained or kept on any property in an apartment or residential zoning district as an activity incidental to a permitted or a conditionally permitted use except within a building. (Ord. 16653 § 2 (part), 2007)

20.10.750 Yard, garage or rummage sales.

A. Yard sale, garage sale or rummage sale shall be allowed outdoors for disposal of used household items during the daylight hours, provided that such sales are not held more frequently than three times a calendar year on the same lot of a single-family or two family dwelling, or not held more frequently than six times a calendar year at places of public assembly or at city parks and recreational areas managed by the parks and recreation department, and each time is conducted for no more than two days at a time.

B. Outdoor rummage sales at places of public assembly and at city parks and recreational areas managed by the parks and recreation department may also include items created and sold by or on behalf of an artist, artisan or crafter.

C. Outdoor rummage sales at places of public assembly and at facilities managed by the parks and recreation department shall comply with the following:

1. Provide off-street parking consisting of one vendor off-street parking space and one customer off-street parking space per table/space. Each off-street parking space shall meet the minimum requirements of Chapter 20.14 (Off-Street Parking and Loading Regulations) of this title;

2. Provide access to the facilities on the property for the disposal of garbage and use of sanitary facilities by all vendors and customers;

3. Provide a ten-foot pedestrian walkway between each row of vendor tables/spaces; and

4. Provide a ten-foot wide access route for emergency services to and within the site area.

D. No person shall conduct or be a vendor at a yard, garage or rummage sale on the property of a place of public assembly, or at city parks and recreational areas managed by the parks and recreation department, without first obtaining the authorization, permission or a permit from the property owner or managing entity. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17360, § 2, 7-20-2010)

Chapter 20.12

DENSITY AND DIMENSIONAL STANDARDS

Sections:

20.12.010 Purpose.

20.12.020 Table of density and dimensional standards.

20.12.030 Supplemental height regulations.

20.12.040 Yards.

20.12.050 Supplemental density regulations.

20.12.060 Vision clearance at intersections.

20.12.010 Purpose.

This chapter is adopted to regulate and restrict the location, height, and size of buildings hereafter erected or structurally altered, the size of yards and open spaces, and the density of population. (Ord. 16653 § 2 (part), 2007)

20.12.020 Table of density and dimensional standards.

The Table of Density and Dimensional Standards found in Appendix B, adopted in its entirety and incorporated herein by reference, sets forth the regulations for minimum zoning district areas, minimum lot sizes, densities and heights, required setbacks, and other general standards as applicable to specific zoning districts. Where calculation of cumulative yard setbacks is permitted, all the individual minimum yard requirements (front, rear and side) as well as the minimum cumulative requirements must be satisfied. The minimum yards, height limits and open spaces, including lot areas required by this chapter, shall not be encroached upon or considered as required yard or open space for any other building, nor shall any lot area or lot dimension be reduced below the requirements of this ordinance, except as hereinafter provided. Additional development standards for specific uses and special purpose districts are also found in Chapter 20.10 of this title. In case of a conflict, the more restrictive standard shall apply. (Ord. 16761 § 1 (part), 2007; Ord. 16653 § 2 (part), 2007)

20.12.030 Supplemental height regulations.

Height regulations as set forth in the Table of Density and Dimensional Standards — Appendix B, may be modified as follows:

A. No new building may be erected or existing building increased in height in such a manner as to shade a solar heating or power facility licensed in the following manner:

1. Where any building installs a heating, cooling or power system using sunlight as a power source sufficient to supply ten percent or more of the building's total energy requirement, the owner of the building may apply to the building official for a license for the system which the building official shall issue once satisfied that the system does supply the above minimum energy requirements.

2. After issuance of the license, no building in adjacent areas may be erected to a height that will cast a shadow on the solar receiver components so licensed. In determining the permitted heights, the December 22nd arc and declination of the sun shall be used. Location of licensed solar power systems shall be shown on the zoning district maps.

B. Public, semipublic or public service buildings, hospitals, institutions, or schools when permitted in a district, may be erected to a height not exceeding one hundred feet, and churches and temples may be erected to a height not exceeding seventy-five feet if the building is set back from each yard line at least one foot for each foot of additional building height above the height limit otherwise provided in the zoning district in which the building is located.

C. Church spires, belfries, monuments, tanks, water and fire towers, windmills, stage towers or scenery lofts, cooling towers, ornamental towers and spires, chimneys, elevator bulkheads, stacks, conveyors and flagpoles may exceed height limits if approved by the building official. (Ord. 16653 § 2 (part), 2007)

20.12.040 Yards.

A. Yards Generally. More than one principal building may be located on a lot in the following instances, however, the provision of these exceptions shall not be construed to allow any building to be constructed outside the buildable area of the lot:

1. Institutional buildings;
2. Public or semipublic buildings;
3. Multifamily dwellings or groups of single-family attached buildings;
4. Commercial or industrial buildings;
5. Homes for the elderly.

B. Front yard regulations may be modified as follows:

1. Where the frontage of a parcel of land is divided among districts with different front yards, the deepest front yard requirement shall apply to the entire frontage;

2. Where forty percent or more of the lot frontage is occupied by two or more buildings, then the required front yard for a new structure is established in the following manner, except that a front yard in excess of district regulations shall not be required:

a. Where the building farthermost from the street provides a front yard not more than ten feet deeper than the building closest to the street, then the front yard for the frontage is and remains an average of the then existing front yards.

b. Where subsection a does not apply and a lot is within one hundred feet of a building on each side, then the front yard is a line drawn from the closest front corners of these two adjacent buildings.

c. Where neither subsection a or b apply and the lot is within one hundred feet of an existing building on one side only, then the front yard is the same as that of the existing adjacent building.

d. The above calculations shall only apply to those buildings providing the required rear yard;

3. Gasoline and diesel or other fueling pump and pump islands may occupy required yards; provided, however, that they are not less than twelve feet from all lot lines. A freestanding canopy with support columns centered on the pump or pump island may encroach up to fifteen feet into the required front yard; provided, that it shall not extend closer than two feet to any lot line;

4. On a dwelling or apartment site an unenclosed porch, carport or entranceway patio with a wall up to six feet high, each not more than one hundred fifty square feet in floor area may extend not more than ten feet into a required front yard. Chimney backs, bay windows, eaves and cornices may extend not more than thirty inches into the required front yard except that cornices and eaves of the main building may extend not more than four feet into the front yard;

5. For apartment houses and other nonresidential structures only, a canopy or other sunshade over a walkway shall be permitted in the front yard or any yard abutting a street, even if wholly supported by attachment to the main structure, providing such canopy or sunshade is not otherwise enclosed. Columns or tiedown struts, if used, shall not be greater than three inches in diameter, and shall not be spaced closer than six feet apart on either side of the walkway. The canopy or sunshade may extend to within two feet of the property line.

D. Right-of-Way Dedication Requirements. Whenever a new nonresidential building is erected or an existing residential building converted to a nonresidential use, no building or occupancy permit is to be issued until a determination is made by the traffic engineer as to the need for dedication of additional right-of-way in accordance with state law. If it is determined that additional right-of-way is needed, such shall be dedicated to public use prior to issuance of any building or occupancy permit.

E. Side and rear yard regulations may be modified as follows:

1. For residential buildings existing on or before August 1, 1979, carports may extend up to three feet into a required side yard, but only when screened by a masonry wall not less than five feet

in height erected along the lot line. Carports that extend into the required side yard shall not be enclosed;

2. Sills, eaves, belt courses, wing-walls at heights above six feet, window air conditioning units, chimney backs, bay windows, cornices and ornamental features may project a distance not to exceed twenty-four inches into a required side yard, and thirty inches into a required rear yard;

3. Open fire escapes, fireproof outside stairways and balconies opening from fire towers, and the ordinary projections of chimneys and flues into a rear yard may project into a required yard for a distance of not more than three and one-half feet, when placed so as to not obstruct light and ventilation;

4. Open, unenclosed porches that do not exceed one hundred eighty square feet in area may extend twelve feet into a required rear yard;

5. Terraces which do not extend above the ground level and that do not exceed one hundred fifty square feet of floor area, with a wall up to six feet in height may project five feet into a required yard, provided these projections be located at least two feet from the adjacent lot line;

6. Where an industrial tract abuts railroad property containing a spur track on the rear or side property line, a railroad loading dock, or the building itself, may extend to the property line for the purpose of receiving service from the railroad spur track;

7. In the R-1, R-2 or R-2A districts where a residential property abuts a dedicated public right-of-way, other than a street right-of-way, owned by the city, the building may extend into the side yard to within five feet of the property line.

F. Side street yard regulations may be modified as follows:

1. For residential buildings existing on or before August 1, 1979, carports may extend to five feet into a required side street yard. Carports that extend into the required side street yard shall not be enclosed;

2. Sills, eaves, belt courses, wing-walls at heights above six feet, window air conditioning units, chimney backs, bay windows, cornices and ornamental features may project a distance not to exceed twenty-four inches into a required side street yard;

3. Accessory structures may extend up to five feet into a required side street yard. (Ord. 16653 § 2 (part), 2007)

20.12.050 Supplemental density regulations.

Density regulations may be modified in the following instances:

A. Lot area per unit requirements shall not apply to dormitories, fraternities, sororities, nursing homes or other similar group quarters where no cooking facilities are provided in individual rooms or apartments;

B. In any special use permit for a planned residential development, and in any instance where site plan approval is required in an RMH, PMD, SD, PR-I, PR-II or A-4 district for residential use, density regulations may be modified as follows:

The maximum number of permitted dwelling units as required in the district regulations may be increased:

1. By five percent if twenty-five percent or more of the site is used for common open space;

2. By five percent if one square foot or more of recreation area is provided for every five square feet of residential floor space; balconies, patios, atriums and clubrooms may be counted as recreation area;

3. By five percent if one-half or more of the required parking is enclosed;

4. By five percent if a panoramic view is provided for the living room of seventy-five percent or more of the dwelling units;

5. By five percent if ten percent or more of the energy use is to be from solar power;

6. By five percent if individual units are soundproofed in accordance with an impact noise rating (I.N.R.) of five or more as described in the publication "A Guide to Airborne, Impact, and Structure Borne Noise-Control in Multifamily Dwell-

ings" by Berendt, Winzer, and Burroughs, US Department of Housing and Urban Development, US Printing Office 1967;

7. By five percent if the area devoted to landscape planting is in excess of thirty-five percent of the site area.

The increase in permitted density resulting from application of the provisions of this subsection shall be limited to a total of thirty-five percent;

C. Where the total floor area of a building is limited by a floor area ratio, the maximum floor area may be increased by four square feet of additional floor area for each square foot of landscaped open space on the lot above the minimum required by this Code. The maximum floor area may be increased by an additional one percent for each ten percent of the building's energy requirement that is provided by solar power. (Ord. 16653 § 2 (part), 2007)

20.12.060 Vision clearance at intersections.

On any corner lot, within that area of a triangle (twenty-foot triangle) formed by the intersecting property lines and a diagonal line joining the property lines at points twenty feet from their intersection, the following conditions shall apply in any front yard, rear yard or both yards:

A. It is unlawful for any person to place, construct or reconstruct any building or structure, including a fence or wall, on a corner lot if the top of such building or structure is more than three feet above the level of the centerline of the nearest abutting street, and such building or structure is within the above twenty-foot triangle; provided, this subsection shall not apply to a retaining wall necessary for the support of the lot, nor to a wall of a building when the building legally extends into such triangle;

B. It is unlawful for any person to locate motor vehicles or motor vehicle parking spaces on a corner lot if the top of any motor vehicle parked there is more than three feet above the level of the centerline of the nearest abutting street, and such motor vehicles or motor vehicle parking space is within the above twenty-foot triangle;

C. Where special conditions exist, or where practical difficulties in the development and adequate use of land would result from the literal enforcement of the terms of this section, the traffic engineer is authorized to grant a modification of the requirements set forth in this section; provided, that any such modifications so granted shall be in harmony with the general intent of this section, and consistent with the public interest, safety and general welfare. Approval of such modifications shall be in writing and shall set forth the specific details, special circumstances and/or conditions of the approval. (Ord. 16653 § 2 (part), 2007)

Chapter 20.14

OFF-STREET PARKING, LOADING AND STORAGE STANDARDS

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Article I. Vehicular Parking

20.14.010 Purpose.

The requirements in this chapter are intended to provide reasonable standards for the provision of off-street parking of motor vehicles, not including bicycles, trucks with three axles or more, semi-trailer trucks and cabs, and the storage of vehicles for sale. These standards are designed to provide compliance with the El Paso comprehensive plan and to achieve the following objectives:

A. Regulate off-street parking requirements according to the use of the facility;

B. Expand tabular display of uses and parking needs;

C. Clarify and simplify required parking calculations;

D. Provide for shared parking (non-simultaneous) arrangements. (Ord. 16653 § 2 (part), 2007)

20.14.020 Scope.

A. Applicability. The off-street parking requirements of this chapter shall be applicable to all uses, except as modified herein, including:

1. New development, including new buildings or facilities;

2. Addition to or enlargement of an existing building or facility which exceeds fifty percent of the original square footage;

3. Change of use of an existing facility;

4. Change of use and hours of operation of the property generating the parking need or the shared parking property of a shared parking arrangement.

B. Location of Spaces. The location, design and number of required off-street parking spaces shall conform to the provisions of this chapter. Except as authorized by administrative review in certain districts or as permitted under the shared parking provisions of this chapter, off-street parking required by this chapter shall be located on the same lot as the use generating the parking need. Parking spaces provided in excess of the required parking spaces shall also comply with the requirements of this chapter.

C. Responsibility for and Use of Spaces. The provision and maintenance of off-street parking shall be the responsibility of the owner of the use, building, structure and/or property on which the use generating the parking need is located. Re-

quired parking spaces shall be utilized only for the parking of motor vehicles, and shall not be utilized for another use or purpose for the duration of the use requiring such off-street parking. Required parking spaces shall not be utilized for repair, storage, dismantling or servicing of vehicles, equipment, materials or supplies. Required parking spaces shall not be rented or leased to persons other than those for whom the parking is intended. The number, design or function of required off-street parking spaces shall not be altered or reduced in a manner that violates the requirements of this chapter.

D. Use of excess spaces. Where the number of off-street parking spaces provided at a site exceeds the maximum number of off-street parking spaces allowed under the Table of Parking Requirements and Standards, the excess parking spaces may be utilized for another permitted use or purpose in accordance with this chapter, including shared parking arrangements, or agreed to off-street parking for another use. Excess parking spaces for new development shall be constructed and landscaped in accordance with the standards of this chapter.

E. Failure to maintain required number of spaces. Failure to maintain the minimum required number of off-street parking spaces may, after written notice to the owner or operator, result in the revocation of the certificate of occupancy for the building or facility in addition to other penalties as described in Chapter 20.04.

F. Storage of Other Types of Vehicles. The parking requirements in this chapter are in addition to required space for storage of trucks, campers, recreation vehicles, or other similar vehicles used in connection with any use. (Ord. 16653 § 2 (part), 2007)

(Ord. No. 17560, § 1, 5-17-2011; Ord. No. 17869, § 1, 9-18-2012)

20.14.030 Definitions.

The following definitions are specific to this chapter and control if in conflict with other provisions of this Code:

A. Base Course/Sub-Grade. A minimum four-inch thick layer of chosen and compacted soil below the wearing surface layer of the parking area whether asphalt, concrete, screenings, gravel, or other approved material. The base course layer should be a course mixture with aggregate no larger than three inches in diameter unless otherwise designed by a professional engineer. A gravel/screening-leveling course may be used atop a rocky compacted and/or semi-cemented conglomerate base course/sub-grade;

B. Desilting Area. Where on-site ponding is not provided, for the purposes of gravel/screening surfaces desilting areas are defined as depressions incorporated into the parking or landscaping upstream of any discharge onto public streets for the purpose of desilting and stilling runoff. Desilting basins shall have a minimum capacity of 0.05 cubic feet per square foot of gravel parking surface (five CF of desilting per one hundred SF parking) unless otherwise designed by a professional engineer and approved by the city engineer.

Example: 1 parking space 9' x 20' = 180 SF x 0.05 = 9 CF desilting basin

Use: 2 FT x 3 FT x 1.5 FT deep or triangular swale

(Entire site may have other requirements)

C. Gravel/Screenings. A coarse aggregate mixture of pebbles and/or rock fragments coarser than sand with fifty percent volume greater than or equal to one-half inch;

D. Hard Surface. For the purposes of gravel/screenings surfaces, hard surfaced areas are defined as any rigid durable surface such as concrete, asphalt, pavers, or composite surface which may include the incorporating of strip drains, drain fields, spacers between pavers, etc., for permeable qualities (porous, allowing in this case for water to pass through) and stormwater harvesting;

E. Motor Vehicle. For the purposes of this chapter, a motor vehicle is defined as a passenger vehicle or light truck with a carrying capacity rated at one ton or less intended for highway use;

F. On-Site Ponding. On-site ponding is defined as privately maintained ponding areas or as storm drainage retained on-site as inherent in low lying areas such as but not limited to valley areas of the city. For the purposes of gravel/screening surfaces, for nonresidential sites, the defined pond

shall be designed for a fifty-year storm, however the rest of the unoccupied area (excluding enclosed buildings) shall be designed to contain a one hundred year storm, with no additional capacity for emergency, silt, or freeboard storage required, and fencing requirements if any are to be determined by a professional engineer based on the conditions and design of the ponding area;

G. Utility Facility. Equipment, mains, lines, and required infrastructure and appurtenances for the transmission of power, fuel, water, sanitary sewer, or communication not including office and administrative building uses. (Ord. 16653 § 2 (part), 2007)

20.14.040 Design and construction.

Required parking spaces shall conform to the following:

A. Minimum Dimensions and Arrangement. Except for compact vehicle spaces, all spaces shall have minimum dimensions of nine feet in width, eighteen feet in length, and six feet and eight inches of unobstructed height, exclusive of access or maneuvering area, ramps, and other appurtenances, except parking spaces reserved for the use of persons with disabilities shall comply with the building code, Chapter 18.08. Parking spaces arranged in tandem and including not more than two spaces in a row shall be permitted for single or two-family detached or single or two-family attached dwelling units. No portion of an off-street parking space shall encroach onto a public right-of-way.

B. Compact Vehicle Spaces Permitted. Where the number of required off-street parking spaces for permitted uses and accessory uses, if any, exceeds thirty spaces, no more than twenty percent of the required spaces may be reserved for compact vehicle parking. Compact vehicle parking spaces shall be a minimum of eight feet in width, sixteen feet in length and six feet and eight inches of unobstructed height for each space and shall be designated for the exclusive use by compact cars only. Spaces reserved for compact vehicles shall be so indicated by appropriate signage with a minimum of six-inch high letters provided by the owner or operator. The owner and operator shall be responsible for preventing the unauthorized use of compact vehicle parking spaces by vehicles other than compact vehicles that extend beyond the dimension of the space thereby creating a safety hazard.

C. Angle Parking Dimensions. Minimum aisle widths and space depths shall be per table, Section 20.14.040(F) and shall be based upon the degree of the angle of the parking. (Space length is the length of the parking space measured parallel with the parking space. Space depth is the projected depth of the parking space measured perpendicular to the aisle providing access to that space.)

D. Access to lots. Access to off-street parking spaces shall be provided by aisles or driveways complying with Title 19 (Subdivisions), Title 13 (Streets, Sidewalks and Public Places), and this chapter. An aisle is the traveled path providing vehicular access to two or more parking spaces. Access shall be subject to approval by the traffic engineer and shall be arranged to minimize turning movements onto and from the public right-of-way. Aisles and driveways providing access to off-street parking spaces shall connect to a dedicated public or private street or easement. Property zoned R, A, or RMU may not be used for access to a parking area on a separate site for a use that is not permitted in the R, A or RMU zone.

E. Acceptable surfaces. Surfacing of required off-street parking spaces shall be with asphalt paving, brick, brick pavers, concrete, concrete pavers or other comparable dust-free surfacing subject to the approval of the director of the city development department or other designee of the city manager. Gravel screening may be an acceptable surface for required parking spaces provided that it complies with provisions of Section 20.14.080 and Appendix C. Surfaces shall be maintained in good condition, free of weeds, dust, trash and debris.

F. Table.

Parking Space Dimensions
[Regular Size Autos and Light Trucks]

Angle	Stall Depth	Aisle Width	Interlock Reduction	Overhang
45 degrees	19' — 1"	13' — 0"	2' — 4"	2' — 1"
60 degrees	19' — 6"	16' — 0"	1' — 8"	2' — 7"
75 degrees	19' — 9"	20' — 0"	1'	2' — 11"
90 degrees	18' — 0"	24' — 0"	0' - 0"	3' — 0"

Parking Space Dimensions
[Compact Size Vehicles]

Angle	Stall Depth	Aisle Width	Interlock Reduction	Overhang
45 degrees	15' — 3"	11' — 6"	2' — 0"	1' — 5"
60 degrees	16' — 4"	13' — 4"	1' — 5"	1' — 9"
75 degrees	16' — 6"	16' — 0"	.9'	1' — 11"
90 degrees	16' — 0"	20' — 0"	0' - 0"	2' — 0"

G. Stormwater drainage. Drainage of stormwater from required off-street parking spaces and parking lots shall conform to good engineering practices and shall be subject to the approval of the city engineer or other designee of the city manager.

H. Lighting. Required off-street parking spaces or parking lots used during hours of darkness shall be provided with adequate lighting. Lighting shall comply with Title 18.

I. Signage. Signs complying with the requirements of Chapter 20.18 (Sign Regulations) may be provided at a parking lot describing the ownership of the lot, its permitted use(s) and the charges or rates for the use of the parking lot, ingress and egress drives, etc.

J. Barriers to Encroachment. Barriers shall be provided to prevent a motor vehicle using a parking space or parking lot from encroaching upon the public right-of-way, including sidewalks. Barriers shall be a minimum of six inches in height, of sufficient length, and located to prevent any portion of the motor vehicle from encroaching. Barriers shall be of an approved design, anchored properly, and fabricated of concrete, asphalt or other approved material.

K. Landscaping and Screening. Parking areas shall be screened in accordance with the requirements of Chapter 20.16 (Screening and Fencing Regulations). Parking areas shall be landscaped in accordance with the requirements of this Code.
(Ord. 16653 § 2 (part), 2007)
(Ord. No. 17442, § 32, 10-26-2010; Ord. No. 17801, § 7, 6-5-2012, eff. 6-11-2012)

20.14.050 Parking requirements and standards.

A. Parking. Table of Parking Requirements and Standards, subsection C. of this title establishes the minimum and maximum number of motor vehicle parking spaces unless otherwise stated, and minimum bicycle parking spaces required for the uses indicated. The city manager or designee shall be authorized to interpret and establish the minimum and maximum parking regulations for uses not shown in the Table of Parking Requirements and Standards, subsection C.

B. Method of computation. Calculations to compute the maximum number of required parking spaces shall be based upon the following formulae:

1. Where the calculation of the required parking results in fractions of spaces, the number of spaces shall be rounded to the next highest whole number for fractions of 0.5 or greater.

2. For new building(s) or development with more than one use, the parking maximum shall be determined by the sum of the number of parking spaces allowed for each individual use computed separately. A shared parking arrangement may be approved for a mixed use building, shopping center, or facility where the uses have different hours of operation or parking usage, in which case the parking requirement shall be based upon the calculation for the individual use or group of simultaneous uses that result in the largest number of off-street parking spaces required.

3. For new building(s) or development with both permitted uses and accessory uses, the parking maximum shall be determined by the sum of the maximum number of parking spaces allowed

for each individual use, permitted or accessory, computed separately. A shared parking arrangement may be approved for a site where the permitted uses have different hours of operation or parking usage from those of the accessory uses, in which case the parking requirement shall be based upon the calculation for the individual permitted use or group of simultaneous permitted uses that results in the largest number of off-street parking spaces required.

4. Parking maximums for an addition to or enlargement of an existing building or facility shall be calculated on the basis of the addition or enlargement and shall be added to the parking maximum for the existing building or facility prior to the expansion. In the event the existing parking provided for the existing building or facility is nonconforming with the requirements of this chapter, refer to Chapter 20.22 (Nonconforming Situations).

5. For a change of use(s) of an existing building or facility, or a portion thereof, the parking requirements shall be calculated on the basis of the sum of the current code required parking as applied to the changed use(s), plus the prior code requirements applied to the unchanged portion(s) of the existing building or facility; or on the basis of the current code for the entire building or facility, whichever is less.

6. Where the parking calculation is determined by the gross floor area (GFA) of the building or facility, the GFA shall be measured to the exterior of the walls for every occupied floor. GFA of a building or facility shall not include areas used solely for off-street parking of motor vehicles or bicycles and associated driveways, and shall not include areas reserved for off-street loading berths.

7. Where the parking calculation is determined by the number of seats or the number of occupants of a building or facility, the occupant load shall be per Title 18, Building and Construction, Chapter 18.08.

8. The GFA of a restaurant, nightclub, bar or cocktail lounge with an outdoor seating area shall also include the gross floor area of such outdoor seating area.

9. The GFA of a shopping center or other similar uses shall be based upon the entire shopping center, including the gross floor area of covered atrium and mall areas. The GFA of a shopping center shall not include the open well areas of the upper levels of a multi-story atrium or mall.

10. Up to five percent of the minimum required vehicular parking spaces may be substituted with motorcycle parking spaces at the rate of one vehicular parking space for each three-motorcycle parking spaces provided. Motorcycle parking spaces shall be a minimum of seventy-five inches by thirty inches each exclusive of access aisles.

C. Table of Parking Requirements and Standards. The parking standards and requirements are established in the Parking Requirements and Standards Table, located in Appendix C, adopted in its entirety and incorporated herein by reference, and unless otherwise provided for herein, all parking shall comply with the parking table.

D. Off-street parking. Off-street parking regulations shall not apply to properties in the Improvement District No. 3, established by Ordinance 736 and dated April 3, 1952. The boundaries of Improvement District No. 3 shall also include all property designated under the Downtown 2015 Plan.

E. Excess parking. Excess parking shall be subject to the following requirement:

1. In addition to the landscape requirements of Title 18.46 (Landscape), one tree for every five spaces in excess of the maximum parking requirement shall be required and shall be placed within the entire parking area to provide for even canopy coverage or along the parkway to create a visual buffer between the parking area and the street.

(Ord. 16761 § 1 (part) Exh. B, 2007; Ord. 16653 § 2 (part), 2007)

(Ord. No. 17262, § 1, 1-5-2010; Ord. No. 17442, § 33, 10-26-2010; Ord. No. 17560, § 2, 5-17-2011)

20.14.060 Shared parking.

A. Submission of request. Whenever a shared parking arrangement is proposed to comply with

the requirements of this chapter, the shared parking arrangement shall be subject to the prior approval of the city manager or designee and shall not require a special permit for off-site, off-street parking. To obtain approval of a shared parking arrangement, the owner or operator of the property on which the parking need is generated shall submit an application containing the following information to the city manager or designee. The fee for processing the application shall be as set by city council resolution.

1. The maximum number of parking spaces, in accordance with this chapter, for the use(s) at the property generating the parking need, the number of parking spaces provided, and the hours of operation of the use(s).

2. The maximum number of parking spaces, in accordance with this chapter, for the use(s) at the shared parking property, the number of parking spaces provided, and the hours of operation of the use(s).

B. Conditions for approval. A shared parking arrangement shall be approved only when the arrangement meets all of the following conditions:

1. The parking arrangement complies with this chapter;

2. The owner or operator demonstrates that the use(s) of the property generating the parking need and the use(s) of the shared parking property are non-simultaneous or that the proposed shared parking spaces are in excess of the parking required for the use(s) of the shared parking property, or a combination of each option;

3. The shared parking property is within three hundred feet of the property generating the parking need and the access is provided between the two properties;

4. The parking area is compatible with the general development of the neighborhood and does not adversely affect the use of adjacent properties; and

5. The required information has been satisfactorily submitted.

C. Modification of arrangement. A modification of a shared parking arrangement shall be subject to the same standards for review and approval by the city manager or designee as the original arrangement.

D. Termination of arrangement. The termination of a shared parking arrangement agreement may, after written notice to the owner or operator, result in the revocation of the certificate of occupancy for the building or facility of the property generating the parking need and which does not meet the minimum parking regulations, in addition to other penalties as described in this title.

E. Sharing with city owned property. A shared parking arrangement in which the city is the owner of the shared parking property shall be permitted provided the owner complies with all of the requirements of this section, and additionally obtains a lease from the city for such use of city property. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17442, § 34, 10-26-2010; Ord. No. 17560, § 3, 5-17-2011)

20.14.070 Parking reductions.

The amount of off-street parking required for a specific use may be reduced below the minimum required in Section 20.14.050 C., if a special permit is approved by city council, as provided in this section:

A. Existing development. Up to a one hundred percent reduction for a use involving an existing structure(s) located within an older neighborhood of the city that is proposed through the rehabilitation, alteration or expansion of the existing structure(s). The applicant shall satisfactorily demonstrate compliance with all of the following conditions:

1. That the structure(s) is located in an older neighborhood of the city that has been legally subdivided and developed for at least thirty years;

2. That the structure(s) does not extend into an area within the property which was previously used to accommodate off-street parking;

3. That the off-street parking required for the proposed use of the structure(s) cannot be reasonably accommodated on the property due to the building coverage, whether due to the existing structure or due to a proposed expansion of the existing structure; and

4. That no vacant areas exist within three hundred feet of the property where the proposed use is to be located that can be reasonably developed to accommodate the off-street parking requirements.

B. New Development in Redevelopment Areas. Up to a one hundred percent reduction for a use involving the new construction of a structure(s) that is proposed as a redevelopment project located within a redevelopment area or transit oriented development corridor of the city. The applicant shall satisfactorily demonstrate compliance with all of the following conditions:

1. That the structure(s) is located within one of the following redevelopment areas: the downtown area (defined as the area between the Union Depot, Paisano Drive, St. Vrain Street, Olive Street, St. Vrain Street, the southern boundary of the Southern Pacific RR Reservation, Campbell Street and Interstate 10), the South El Paso area (defined as the area south of Paisano Drive, and lying between Santa Fe Street and Cotton Street), and any other redevelopment area or transit oriented development corridor as may be recommended by the city plan commission and approved by the city council;

2. That the proposed building coverage on the lot is necessary for the proposed use, both in design and function necessitating the reduction; and

3. That no vacant areas exist within three hundred feet of the property where the proposed use is to be located that can be reasonably developed to accommodate the off-street parking requirements.

C. Parking Reduction Application Procedures. An applicant requesting consideration of a parking reduction shall comply with all of the following:

1. A special permit application for an off-street parking reduction shall not be construed as an automatic approval by the city and shall require the review and approval of the city council as set forth herein;

2. The applicant shall submit adequate documentation to ensure compliance with the provisions of this section. City council shall make the final determination following a recommendation of the city plan commission and may impose conditions and safeguards necessary to protect the public welfare and to conserve and protect property;

3. A completed special permit application for an off-street parking reduction shall be submitted to the planning official, and shall be accompanied with all of the following:

a. One copy of a completed application signed by the property owner(s), and

b. Eight copies of a detailed site plan of the subject property and all properties within three hundred feet adjoining the subject property, drawn to scale and showing the following:

i. Legal description,

ii. Property lines with dimensions,

iii. Location and arrangement of existing and proposed structures,

iv. Location and arrangement of existing and proposed off-street parking areas,

v. Location and arrangement of existing and proposed on-street parking areas within a three hundred radius from the perimeter of the lot of the facility requesting the reduction,

vi. Calculation of the number of minimum off-street parking spaces for the existing and proposed use(s) of the property.

vii. Off-street loading and unloading berths, where applicable,

viii. Off-street parking spaces and driveways not subject to reduction, if applicable,

ix. Streets abutting the property, including the location and dimensions of sidewalks, and

x. Areas within the property where landscaping is provided, if any,

c. One copy of a parking reduction impact study or of the letter from the city engineer waiving the parking reduction impact study, and

d. One copy of a letter from the Director of Sun Metro indicating that the main entrance to the property is within one thousand feet of a mass transit system route,

e. One copy of a proof of ownership document, and

f. One copy of a current tax certificate sealed and having the signature of the city tax assessor/collector, for each parcel of property described in the application for an off-street parking reduction;

4. An off-street parking reduction granted pursuant to this section shall be particular to the use for which it was granted. A change in use that results in a change of parking requirements or hours of operation shall automatically terminate the off-street parking reduction;

5. Structure(s) for which an off-street parking reduction has been granted shall be in accordance with all other applicable codes;

6. An application for an off-street parking reduction shall demonstrate that all of the following circumstances apply:

a. That a reduction in the off-street parking requirement will not result in the unreasonable parking or loading of vehicles on public streets in such a manner as to interfere with the free flow of traffic on the streets, as demonstrated by findings of a parking reduction impact study where required by the city engineer. A parking reduction impact study, where required, shall be prepared in accordance with the standards required by the city engineer,

b. That a reduction in the off-street parking requirement will not create a safety hazard or other condition inconsistent with the objectives of this title,

c. That the property where the proposed use is to be located has sidewalks and the main entrance is within one thousand feet of a mass transit system route, as determined by the director of Sun Metro, and

d. That off-street parking not subject to a reduction shall comply with all other city ordinances governing off-street parking, including accessibility for the disabled.

D. Administrative parking reductions.

1. The zoning administrator may approve up to a ten percent parking reduction below the minimum required for a use involving an existing building(s) or structure(s) for applicants meeting the requirements specified in this section. The zoning administrator must be satisfied that the approval of a reduction will substantially serve the public convenience and welfare and will not substantially injure the neighboring property.

2. An applicant requesting a reduction under this section must submit a written application and shall satisfactorily demonstrate compliance with all of the following conditions:

a. That the required minimum number of off-street parking spaces cannot be reasonably accommodated on the property involved; and

b. That the request for the reduction is due to a change in use; and,

c. That the reduction of the required minimum parking spaces is for an existing building(s) or structure(s); and

d. That the reduction of the required minimum parking spaces is not for a new structure(s) or building(s) or due to the expansion of an existing structure(s) or building(s); and

e. That the applicant provides letters from the abutting property owners stating that the abutting property owners do not object to the parking reduction;

3. As part of the review process, the traffic engineer shall review the request to determine the impact on the surrounding properties and shall recommend approval or denial of the request. If the city traffic engineer recommends denial, the applicant shall be provided with the reasons for denial.

4. Upon a recommendation for approval from the city traffic engineer, the zoning administrator shall determine if all other provisions of this section have been satisfied and approve or deny the request for a parking reduction. If necessary to reduce the impact to neighboring property, the zoning administrator may impose additional requirements, such as landscaping or screening, as a condition of approval.

5. If the zoning administrator denies the request, the property owner may appeal the decision to the zoning board of adjustment. (Ord. 16653 § 2 (part), 2007)

(Ord. No. 17261, § 1, 1-5-2010; Ord. No. 17442, § 35, 10-26-2010; Ord. No. 17560, §§ 4—9, 5-17-2011)

20.14.080 Gravel/screening surface parking.

A. Allowed uses.

1. Office, educational or institutional (less than or equal to five thousand sf building).

a. Gravel/screenings surfaced parking areas may be incorporated for the required parking reserved for use by employees and staff of in-store retail or professional offices, and for required parking where on-site ponding (see Section 20.14.080 C.4.) or permanent desilting basins are provided. In no case shall gravel/screening parking exceed fifty percent of the total required parking.

b. The perimeter of any gravel or screenings parking and drives areas shall be delineated by edging, curbing, abutting hard surfaces or other method as approved by the director of the city development department or other designee of the city manager; and signage shall be installed indicating "Parking For Employees, Staff, and/or Overflow Parking Only."

2. Office, educational or institutional (greater than five thousand sf building).

a. Gravel or screenings surfaced parking may be incorporated for parking in excess of the required parking only.

b. The perimeter of any gravel or screenings parking and drives areas shall be delineated by edging, curbing, abutting hard surfaces or other method as approved by the director of the city development department or other designee of the city manager; and signage shall be installed indicating "Overflow Parking Only."

c. All access drives to required parking shall be hard surfaced.

3. Commercial/manufacturing/warehousing/storage/construction yards/ high traffic uses.

a. Gravel/screenings surfaces may be incorporated for parking in excess of the required parking, for employee parking, for the storage users of truck trailers, storage containers, equipment, supplies, materials, motor vehicles or recreational vehicles which are part of the business function of the facility or site; including transport drop-offs and stock-in-trade.

b. All required parking for visitors, customers, employees, or patrons shall be hard surfaced.

c. The perimeter of any gravel or screenings parking and drives areas shall be delineated by edging, curbing, abutting hard surfaces or other method as approved by the director of the city development department or other designee of the city manager; and signage shall be installed indicating "Overflow Parking Only" or as appropriate.

d. All access drives to required parking shall be hard surfaced.

e. All loading docks and all other loading areas shall be hard surfaced.

4. Recreation, amusement and entertainment.

a. For outdoor facilities, gravel/screenings surfaces may be incorporated for required parking in accordance with the attached table (Parking Table, Appendix C). For indoor facilities, gravel surface parking areas may be incorporated for parking in excess of the required parking, and for required parking where on-site ponding or permanent desilting basins are provided.

b. Gravel/screenings surfaces may be incorporated for parking in excess of the required parking and for the storage of truck trailers, storage containers, equipment, supplies, materials, recreational vehicles that are part of the function of the facility.

c. The perimeter of any gravel or screenings parking and drives areas shall be delineated by

edging, curbing, abutting hard surface or other method as approved by the director of the city development department or other designee of the city manager.

d. All access drives to required hard surfaced parking shall be hard surfaced.

5. Temporary Uses.

a. Gravel/screenings surfaces may be incorporated for all required parking subject to review, approval, and conditions by the director of the city development department or other designee of the city manager.

b. Temporary uses with no parking requirements (i.e., construction areas, etc.) are exempt from parking surface requirements.

c. The perimeter of any gravel or screenings parking and drive areas shall be delineated by edging, curbing, or abutting hard surface or other method as approved by the director of the city development department or other designee of the city manager.

6. Utility, miscellaneous and governmental facilities.

a. Gravel/screenings surfaces may be incorporated for required and/or excess parking subject to review, approval, and conditions by the director of the city development department or other designee of the city manager.

b. Temporary uses with no parking requirements (construction areas, etc.) are exempt from parking surface requirements.

c. Any gravel or screenings parking areas shall be delineated by edging, curbing, or abutting hard surface or other method as approved by the director of the city development department or other designee of the city manager.

7. Agricultural and related uses. Gravel/screenings surfaces may be incorporated for all required parking including truck trailers, storage containers, equipment, supplies, materials, recreational vehicles which is part of the business function of the facility as well as personal vehicles of the living quarters on the premises, and for parking in excess of the required parking.

8. Residential.

a. Gravel/screenings surfaces may be incorporated for:

i. Required parking located at a distance no less than twenty feet from the front property line;

ii. For required parking where on-site ponding (see Section 20.14.080(C)(4)) or permanent desilting basins are provided for the surface area of the gravel/screening parking area; and

iii. For all parking in excess of the required parking within side and rear yards.

b. The perimeter of any gravel or screenings parking areas shall be delineated by edging, curbing, abutting hard surfaces or other method as approved by the director of the city development department or other designee of the city manager.

B. Non-allowed uses and restrictions.

1. Gravel/screenings surfaces shall not be incorporated for either required or excess parking for motor vehicle sales except as allowed in other sections of this chapter, for repair or dismantling uses, for storage of used drive train components other than tires, wheels or drive shafts, or for fueling or lubricating bays.

2. Gravel/screenings surfaces shall not be incorporated for either required or excess parking for hospital or medical treatment uses with buildings greater than or equal to five thousand square feet.

3. Gravel/screenings surfaces may be not be incorporated for either required or excess parking in excess of ninety-nine spaces.

4. No authorizations herein shall supersede state or federal requirements, restrictions, rules, or regulations.

5. No parking is allowed on top of landscaping or areas not specifically designated for parking.

6. Parking surfaces with more than five parking spaces shall be paved or uniformly covered with gravel. This provision shall not apply to temporary parking lots defined as lots used for less than one month, after which access is prohibited. Such temporary lots shall be required to apply water or suitable oil or chemical.

C. General requirements for all allowed uses.

1. All driveway aprons from public streets to any gravel/screenings surfaced areas shall be concrete, asphalt (where applicable), or composite thereof. Driveway apron shall extend a minimum of twenty feet from the property line.

2. Where possible, gravel/screenings surfaced parking areas shall be graded at slopes from zero percent to two percent. Gravel surfaced parking areas exceeding two percent slope shall provide for appropriate gradation to be designed by a professional engineer. All gravel/screening shall be a minimum thickness on top of the base course/sub-grade as defined in subsection (D)(2). Alternatively, as otherwise allowed or required by base course/sub-grade conditions and as evaluated by a professional engineer and geotechnical engineering evaluation. In all cases, unless otherwise approved by the director of the city development department or other designee of the city manager, surface drainage of that parking should be directed either to an on-site ponding area or to a permanent desilting/stilling area (planter, landscaping etc.) prior to any discharge to a public street.

3. Site drainage should be directed away from gravel/screenings surfaced parking areas.

4. On-site ponding shall be provided for the surface area of any gravel/screening parking area if ponding for both the pre-existing undeveloped and the difference (if any) to the developed stormwater runoff from that site has not been previously provided for that site whether on-site or off-site.

5. All TAS parking shall be hard surfaced and comply with TAS requirements; gravel/screenings surfaces may be incorporated for driveways and areas not utilized for accessible routes.

6. The perimeter of all gravel/screening parking and drives shall be delineated by edging, curbing, abutting hard surface or other method as approved by the director of the city development department or other designee of the city manager.

7. The property owner shall maintain all gravel/screening surfaced parking and drive areas, on-site ponding, and/or desilting basins in clean and good condition. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17442, § 36, 10-26-2010; Ord. No. 17560, § 10, 5-17-2011; Ord. No. 17801, § 8, 6-5-2012, eff. 6-11-2012)

Article II. Bicycle Parking

20.14.090 Bicycle parking required.

Bicycle parking facilities shall be provided for new buildings or facilities, additions to or enlargements of existing buildings, or for changes in the use of buildings or facilities that result in the need for additional auto parking facilities in accordance with the parking requirements in Article I of this chapter and where required in table, Section 20.14.050(C). The planning official is authorized to approve modifications to these standards when the applicant successfully demonstrates that the proposed alternative layout, location, design or type of racking meets the intent of these standards. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17442, § 37, 10-26-2010)

20.14.100 Number of bicycle spaces.

The number of required bicycle parking spaces shall be calculated as shown in table, Section 20.14.050(C) of this chapter. Where the calculation of the required bicycle parking results in fractions of spaces, the number of spaces shall be rounded to the next highest whole number for fractions of 0.5 or greater. (Ord. 16653 § 2 (part), 2007)

20.14.110 Standards.

A. Individual bicycle parking spaces shall be a minimum of seventy-five inches long by twenty-four inches wide for each space. Where double-sided multi-racks are utilized resulting in overlapping of bicycle parking spaces, the minimum bicycle parking space for two bicycles shall be one hundred inches long by thirty-six inches wide.

B. Bicycle parking racks shall be located in areas visible from public ROW and, shall be provided with adequate lighting if intended for use after dark. Lighting shall comply with Title 18. A

minimum of fifty percent of the required number of bicycle parking spaces shall be located within fifty feet of a public entrance to the building requiring bicycle parking spaces.

C. Bicycle parking racks shall support the bikes in a stable, upright position, without damage to wheels, frame or other components.

D. Bicycle parking racks shall support the frame of the bicycle and at least one wheel. Racks shall allow the frame and one wheel to be locked to the rack, regardless of whether the front wheel is removed or not. Racks shall be securely anchored. Racks shall accommodate a wide variety of sizes and types of bicycles, including those with water bottles or without kick stands.

E. Bicycle parking racks shall be permanently mounted/installed within private property on solid surfaces. Racks placed adjacent to sidewalks shall not encroach upon required pedestrian access ways, accessible routes or accessible passing space areas.

F. Access shall be provided to each required bicycle parking space. Aisles shall have a width of at least three feet to the front, rear or side of the bicycle parking spaces.

G. Racks shall be placed a minimum of twenty-four inches away from walls and other elements that may create an obstacle to accessing the bike parking spaces. (Ord. 16653 § 2 (part), 2007)

20.14.120 Bicycle parking on city right-of-way.

Where the required bicycle parking spaces cannot be properly located upon the lot generating the need for bicycle parking, the owner or applicant of the property generating the need for bicycle parking may apply for shared parking per Section 20.14.060 or a special privilege from the city for permission to locate the bicycle parking on city right-of-way. (Ord. 16653 § 2 (part), 2007)

20.14.130 Substitution of bicycle parking.

New and existing building and facilities may substitute up to ten percent of the required vehicular spaces for additional bike parking. Substitutions shall be made based on one vehicular parking space for at least six bicycle parking spaces. Substitutions shall be subject to the requirements of Section 20.14.100 and shall be in addition to the number of bicycle parking spaces required by this chapter. (Ord. 16653 § 2 (part), 2007)

20.14.140 Shared bicycle parking.

Whenever a shared bicycle parking arrangement is proposed to comply with the requirements of this chapter, the shared bicycle parking arrangement shall be subject to the prior approval of the planning official. To obtain approval of a shared bicycle parking arrangement, the owner or operator of the property on which the parking need is generated shall comply with the requirements of Section 20.14.060. (Ord. 16653 § 2 (part), 2007) (Ord. No. 17442, § 38, 10-26-2010)

Article III. Loading Standards

20.14.150 Loading berths/spaces required.

Loading berths and loading spaces for truck trailers shall be provided for new buildings or facilities, additions to or enlargements of existing buildings, or for changes in the use of buildings or facilities that result in the need for additional loading berths or spaces where required in Section 20.14.050. (Ord. 16653 § 2 (part), 2007)

20.14.160 Truck trailer parking.

The owner or operator of a building or facility shall be responsible for providing adequate parking and maneuvering areas for truck trailers as required for the proper operation of the use(s) present in the building or facility, in addition to the spaces required under Section 20.14.150. Such parking and maneuvering areas shall be designed in accordance with sound engineering practices. Areas designated for the parking of truck trailers are not required to be marked or striped. (Ord. 16653 § 2 (part), 2007)

20.14.170 Standards.

A. Location of Spaces. The location, design and number of required off-street parking spaces

shall conform to the provisions of this chapter. Off-street truck trailer loading or parking required by this chapter shall be located on the same parcel as the use generating the loading or parking need. Parking spaces provided in excess of the required parking spaces shall also comply with the requirements of this chapter, except this subsection.

B. Responsibility for and Use of Spaces. The provision and maintenance of off-street truck trailer loading and parking shall be the responsibility of the owner of the use, building, structure and/or property on which the use generating the loading or parking need is located. Required loading or parking spaces shall be utilized only for the loading, unloading or parking of truck trailers, as appropriate, and shall not be utilized for another use or purpose for the duration of the use requiring such off-street loading or parking. The number, design or function of required off-street loading or parking spaces shall not be altered or reduced in a manner that violates the requirements of this chapter.

C. Failure to maintain required number of spaces. Failure to maintain the required number of off-street truck trailer loading or parking spaces may, after written notice to the owner or operator, result in the revocation of the certificate of occupancy for the building or facility in addition to other penalties as described in Chapter 20.24. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17560, § 11, 5-17-2011)

20.14.180 Design and construction.

A. Minimum Dimensions and Arrangement.

1. Required off-street truck trailer loading spaces shall comply with the following minimum dimensional requirements: for truck trailer and cab combinations equal to or less than sixty feet in length, truck trailer parking spaces and berths shall be a minimum of twelve feet wide by sixty feet long with a minimum of fifty feet maneuvering area (total area = twelve feet by one hundred ten feet); for truck trailer and cab combinations greater than sixty feet in length, truck trailer parking spaces and berths shall be a minimum of twelve feet wide by seventy-five feet long with a minimum of fifty feet maneuvering area (total area = twelve feet by one hundred twenty-five feet).

2. Layouts utilizing shared maneuvering area between two or more rows of truck trailer loading spaces shall be acceptable. Alternate maneuvering area sizes may be accepted by the building official where an appropriate layout providing adequate truck trailer maneuvering can be demonstrated. Loading berths, loading spaces and the maneuvering areas to enter and exit from each berth or space shall have a minimum of fourteen feet unobstructed height. No portion of an off-street truck trailer loading or parking space shall encroach onto a public right-of-way.

B. Reductions. No reductions shall be permitted to the number of truck trailer loading and parking spaces and facilities required in Section 20.14.050.

C. Access to Lots. Access to off-street truck trailer loading and parking spaces shall be provided by aisles or driveways complying with Title 19 (Subdivisions), Title 13 (Streets, Sidewalks and Public Places), and this chapter. An aisle is the traveled path providing vehicular access to two or more parking spaces. Access shall be subject to approval by the director of the city development department or other designee of the city manager and shall be arranged to minimize turning movements onto and from the public right-of-way. Aisles and driveways providing access to off-street parking spaces shall connect to a dedicated public or private street or easement. Property zoned R, A, or RMU shall not be used for access to a parking area on a separate site for a use that is not permitted in the R, A or RMU zone. The maneuvering of truck trailers into and out of loading, parking and associated maneuvering areas shall not encroach upon public right-of-way or restrict, reduce, or obstruct traffic flow by vehicles or pedestrians. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17442, § 39, 10-26-2010; Ord. No. 17801, § 9, 6-5-2012, eff. 6-11-2012)

Article IV. Storage Standards

20.14.190 Purpose.

The requirements of this article are intended to provide reasonable standards for the keeping of outdoor, off-street, on-site storage. (Ord. 16653 § 2 (part), 2007)

20.14.200 Applicability.

A. This article shall apply to the outdoor storage of motor vehicles and wheeled portable units, including, but not limited to: automobiles, noncommercial trucks, light trucks, storage containers, bicycles, motorcycles, semi-trailer trucks and cabs, recreational vehicles, motor-homes, trailers, boats, buses, mobile homes, industrial housing units, etc. These requirements shall also apply to the outdoor storage of materials, products, junk, equipment or merchandise, regardless of screening from view from a public right-of-way or alley.

B. Exceptions:

1. Incidental outdoor storage of materials related to construction sites with a valid building permit;

2. Outdoor storage of live plants on lots of not less than one acre;

3. Outdoor storage of landscaping gravel, rocks, etc., for wholesale or retail sales;

4. Outdoor storage of goods incidental to agricultural uses;

5. Outdoor storage for sale of monuments for graves, including headstones, markers, statues, etc.;

6. Outdoor storage of junked vehicles and vehicle parts, junk yards or wrecking yards, when located on property with a valid certificate of occupancy for that use at that address;

7. Outdoors storage of wheeled units that are construction or heavy equipment designed primarily to be utilized off-road, such as earth moving equipment, road graders, etc.

C. Outdoor storage shall only be located where permitted as a principal use or an accessory use in accordance with the table of permitted uses in Chapter 20.08. (Ord. 16653 § 2 (part), 2007)

20.14.210 Standards.

A. General. Outdoor storage of all types shall comply with the following:

1. The maintenance of outdoor storage areas shall be the responsibility of the owner of the use, building, structure and/or property on which the storage is located;

2. Outdoor storage areas shall not be utilized for repair, dismantling or servicing of the stored items;

3. Outdoors storage shall not utilize areas designated or required for off-street parking, off-street truck trailer loading, maneuvering areas, landscaping, accessible routes or similar required elements;

4. Outdoor storage areas shall be adequately sized to ensure that all outdoor storage is located on approved surfacing.

B. Motor Vehicles and Wheeled Units—For Sale.

1. Outdoor storage areas for the following items offered for sale at the same premises - motor vehicles, storage containers, mobile homes, industrialized housing units and other wheeled units shall comply with the surfacing requirements of Section 20.14.030(E).

2. Such outdoor storage areas shall be landscaped where required in accordance with the landscaping ordinance, including the provision of canopy trees and landscape irrigation systems.

3. Such outdoor storage of motor vehicles, not including junked or wrecked vehicles or vehicles parts, shall not be required to be screened unless required by Chapter 20.16 or other provisions of Title 20.

C. Motor Vehicles and Wheeled Units—Not For Sale.

1. Outdoor storage areas for the following items not offered for sale at the same premises - motor vehicles, storage containers, mobile homes, industrialized housing units and other wheeled units shall comply with the surfacing requirements of Section 20.14.210(D).

2. Such outdoor storage areas shall be landscaped where required in accordance with the landscaping ordinance, including the provision of canopy trees and landscape irrigation systems.

3. Such outdoor storage of motor vehicles, not including junked or wrecked vehicles or vehicles parts, shall not be required to be screened unless required by Chapter 20.16 or other provisions of Title 20.

D. Outdoor Storage Standards.

1. Outdoor storage areas for materials, products, junk, merchandise, equipment that is not a motor vehicle offered for sale and not another wheeled unit offered for sale, shall comply with the following requirements:

a. Ingress and egress aprons shall comply with Title 19;

b. Storage spaces or areas, drives and aisles shall be constructed of a minimum of six inches of sub-grade material uniformly compacted to a minimum of ninety percent of maximum density in accordance with ASTM D-1557 and a minimum of two inches of gravel/screenings;

c. The gravel/screenings shall be maintained by the owner or operator to the satisfaction of the director of the city development department or other designee of the city manager, including regrading or restoration as needed due to traffic use, or storm related degradation.

2. Such outdoor storage areas are not required to be landscaped.

3. Such outdoor storage areas shall be required to be screened from view from adjacent properties and public streets by screening walls or fences in accordance with Chapter 20.16 or other provisions of Title 20.

4. Outdoor storage of materials, products, merchandise, etc., that is offered for sale at a licensed flea market shall comply with the surfacing requirements of Section 20.14.030(E). (Ord. 16653 § 2 (part), 2007)

(Ord. No. 17442, § 40, 10-26-2010; Ord. No. 17801, § 10, 6-5-2012, eff. 6-11-2012)

Chapter 20.16

SCREENING AND FENCING

Sections:

20.16.010 Applicability.

20.16.020 Mandatory walls.

20.16.030 Permitted walls.

20.16.040 Masonry walls.

20.16.050 Maintenance.

20.16.060 Vision clearance at intersections.

20.16.010 Applicability.

Fences and walls shall be constructed and maintained in accordance with the requirements set forth in this chapter. (Ord. 16653 § 2 (part), 2007)

20.16.020 Mandatory walls.

A. Where both properties are vacant, a six-foot high masonry wall (measurement of height is from the high ground) shall be erected by the owner of whichever property first builds upon it:

1. Between all R (including Ranch-Farm and NOS) and A districts;

2. Between all R (including Ranch-Farm and NOS) and C districts;

3. Between all R (including Ranch-Farm and NOS) and manufacturing or industrial districts;

4. Between all A and C districts;

5. Between all A and manufacturing or industrial districts by the owner of whichever property that first builds upon it or uses it for outside storage;

6. Between all R (including Ranch-Farm and NOS) or A districts and all special purpose districts as part of the approved site plan for the special purpose district;

7. In R districts (including Ranch-Farm and NOS), between residential uses and those nonresidential uses permitted in R districts by the owner of the property having the nonresidential use when he builds upon it;

B. In existing developments, a six-foot high masonry wall (measurement of height is from the high ground) shall be erected:

1. Between all R (including Ranch-Farm and NOS) and A districts by the owner of the A property when he builds upon it;

2. Between all R (including Ranch-Farm and NOS) and C districts by the owner of the C property when he builds upon it;

3. Between all R (including Ranch-Farm) and manufacturing or industrial districts by the owner of the M or I property when he builds upon it;

4. Between all A and C districts by the owner of the C property when he builds upon it;

5. Between all A and manufacturing or industrial districts by the owner of whichever property first builds upon it or uses it for outside storage;

6. Between all R (including Ranch-Farm and NOS) or A districts and all special purpose districts as part of the approved site plan for the special purpose district;

7. In R districts (including Ranch-Farm and NOS), between residential uses and those nonresidential uses permitted in R districts by the owner of the property having the nonresidential use;

C. A six-foot-high tubular or wrought iron fence or a six-foot-high masonry wall or a combination thereof shall be erected along any property line adjacent to drainage structures or irrigation canals when buildings are erected on such properties or before the property is used for other than agricultural uses, or if the property on which the drainage structures are located on is utilized as a park/pond approved by the city; except that this requirement may be waived by the director of the city development department or other designee of the city manager if the property owner provides an alternative design to ensure the public health and safety. Such alternative design shall not include a chain link fence and shall be prepared and sealed by a professional engineer in accordance with the following conditions:

1. The side slope is equal to or less than three is to one;

2. The flow depth is equal to or less than three feet at the deepest point;

3. The velocity of the runoff is equal to or less than four feet per second.

Fencing requirements for natural drainage paths are set forth in Section 18.44.200. Property abutting non-city owned drains, canals and laterals that are used or were formally used for irrigation purposes do not need to meet the mandatory wall requirement specified in this subsection.

D. Walls and fences as required in subsections A, B, C and G of this section shall be installed before the issuance of certificates of occupancy and compliance for any building constructed on the property or before any use is made of such property.

E. Any property used for off-street parking by special permit shall be screened from any adjacent property by a six-foot-high screening wall, if such adjacent property is R-zoned. "Adjacent" means the nearest or closest to, whether or not separated by an intervening street or alley. The screening wall shall be built in accordance to all applicable code requirements including those for visibility triangles. No openings for vehicular or pedestrian ingress or egress shall be allowed unless specifically authorized and designated on the approved site plan. The six feet height requirement may be reduced only upon a determination by the traffic engineer that a reduction is needed for safety or visibility purposes, and the reduction in wall height shall be so designated on the approved site development plan.

F. A six-foot-high screening wall shall be required for a transportation terminal type A or B, passenger station, freight station, motor-carrier terminal, warehouse, railyard, airport, intermodal facility, heliport, airpad, helistop, interlocking tower, diesel maintenance facility and railroad repair shop as provided in Section 20.10.240.

G. Where both properties are vacant or in existing developments, an eight-foot high masonry wall (measurement of height is from the high ground) shall be erected between all NOS zoning districts with a designation of a Wildlife Sanctuary and any other zoning districts. The purpose of these standards is to minimize pollution, prevent erosion, preserve wildlife habitats, and protect natural views and passive recreational opportunities.

H. Exceptions.

1. Topographic Conditions. Upon receipt of a written application from the property owner, the zoning administrator, when topographic conditions negate the visual screening effect of the wall, may approve a revised location or may waive the mandatory wall requirement or for a mandatory wall within the same property to achieve an equal or improved use of the screen.

2. Nonresidential Uses Adjacent to Open Space. Upon receipt of a written application from the property owner, the zoning administrator, when the property is adjacent to nonresidential uses or common recreational areas, such as golf courses, parks or other areas designated as open space under the provisions of this title, may approve a revised location or may waive the mandatory wall requirement.

3. Uses Adjacent to Property Zoned NOS. A mandatory wall along the property line of a natural open space zoning district and abutting properties cannot be waived unless the Zoning Administrator makes a determination that the deviation is in harmony with the general intent of this section and consistent with the public interest, safety and general welfare. Such determinations shall be in writing and shall be maintained by the Zoning Administrator.

4. Where Streets Separate Zoning Districts. No mandatory wall shall be required where a street is the boundary line between districts except that this does not apply to properties used for outside storage.

5. Alternative Designs. In instances whereby a masonry wall is mandatory in accordance with Sections 20.16.020 A and B, the City Plan Commission may consider and make a recommendation to City Council for an alternative screening and fencing design.

6. Fee. An applicant will pay the established fee for processing requests to amend the mandatory wall requirement. (Ord. 16653 § 2 (part), 2007)

(Ord. No. 17306, § 5, 4-6-2010; Ord. No. 17442, § 41, 10-26-2010; Ord. No. 17518, § 1, 3-29-2011; Ord. No. 17801, § 11, 6-5-2012, eff. 6-11-2012; Ord. No. 18461, §§ 2, 3, 1-12-2016; Ord. No. 18531, § 7, 6-28-2016)

20.16.030 Permitted walls.

A. In residential or apartment districts or for residential or apartment uses in other districts, a screening wall or fence not in excess of eight feet high may be erected around that part of the lot behind the front wall of the main building or behind the front yard line whenever the main building is located further back. A screening wall or fence not in excess of forty-two inches high may be erected in that part of a lot in front of the front line of the main building, except that no screening wall or fence may be more than thirty-six inches high within twenty feet of a street intersection or where visibility of vehicle or pedestrian traffic might be impeded as specified in Section 20.16.060 of this chapter.

For the purposes of this regulation, a wall or fence may exceed the heights set forth in this subsection up to a total height of ten feet, except within twenty feet of a street intersection or where vehicle or pedestrian traffic might be impeded as specified in Section 20.16.060 of this chapter. This provision applies when the vertical surface of the wall or fence above the eight feet or forty-two inches, whichever applies, is not less than seventy-five percent open, and which does not otherwise impede the vision clearance for motor vehicle or pedestrian traffic at intersections or driveway exits. The wall or fence may include wrought-iron fences with or without masonry columns, chain link, picket, split rail and other similar type fences not otherwise prohibited.

B. In commercial, manufacturing and industrial districts.

1. Where storage is a permitted accessory use with screening, and where not otherwise prohibited, a screening wall or fence not in excess of eight feet high may be erected along or behind any lot line; provided, that the following conditions are met:

a. Where any access driveway is located, the height of such wall or fence shall not exceed forty-two inches in height within ten feet of the street lot line;

b. The wall or fence shall not exceed forty-two inches in height for visual clearance at other locations as determined by the traffic engineer; and,

c. No screening wall or fence shall be more than thirty-six inches high within twenty feet of a street intersection as specified in Section 20.16.060 of this chapter.

2. Upon written application from the property owner, the zoning administrator may approve an additional four feet of fencing to the above eight foot screening wall or fence provided that the following conditions are met

a. The fence does not exceed twelve feet in height;

b. The property is located in a manufacturing or industrial zoning district;

c. The fence is only utilized as screening for outside storage where fifty percent or more of the property is used for outside storage;

d. Any screening wall or fence greater than forty-two inches in height along any street frontage shall be located ten feet behind the street lot line;

e. Where a wall is located ten feet behind the street lot line, the property owner shall provide landscaping within the ten feet, between the wall and the street lot line, based on the requirements of Title 18; and,

f. The request is reviewed and approved by the traffic engineer for visual clearance at driveways and intersections.

g. Upon site plan review, the zoning administrator may require additional landscaping as part of the approval. If the zoning administrator denies the request, the property owner may appeal the decision to the city council.

3. Notwithstanding subsection B.1, security fences not in excess of twelve feet in height may be erected along or behind any lot line.

C. If a wall is proposed to be constructed on a common property line, the written approval of the adjoining property owner must be submitted with the application for a building permit. If the city is the adjoining property owner, written approval of the zoning administrator must be requested and submitted with the application for a building permit. (Ord. 16653 § 2 (part), 2007) (Ord. 17191, § 1, 9-15-2009; Ord. No. 019517, § 2, 6-20-2023)

20.16.040 Masonry walls.

A. A masonry wall may exceed the height standard up to a maximum of eight inches for the purpose of rounding off the wall.

B. Masonry walls over six feet in height must be designed by a professional engineer. (Ord. 16653 § 2 (part), 2007)

20.16.050 Maintenance.

Fences and walls shall be maintained in good repair and shall be kept vertical, uniform and structurally sound. (Ord. 16653 § 2 (part), 2007)

20.16.060 Vision clearance at intersections.

On any corner lot, within that area of a triangle (twenty-foot triangle) formed by the intersecting property lines and a diagonal line joining the property lines at points twenty feet from their intersection, the following conditions shall apply in any front yard, rear yard or both yards:

A. It is unlawful for any person to place, construct or reconstruct any building or structure, including a fence or wall, on a corner lot if the top of such building or structure is more than three feet above the level of the centerline of the nearest abutting street, and such building or structure is within the above twenty-foot triangle; provided, this subsection shall not apply to a retaining wall necessary for the support of the lot, nor to a wall of a building when the building legally extends into such triangle.

B. It is unlawful for any person to locate motor vehicles or motor vehicle parking spaces on a corner lot if the top of any motor vehicle parked there is more than three feet above the level of the centerline of the nearest abutting street, and such motor vehicles or motor vehicle parking space is within the above twenty-foot triangle.

C. Where special conditions exist, or where practical difficulties in the development and adequate use of land would result from the literal enforcement of the terms of this section, the property owner may be authorized to deviate from the requirements set forth in this section by the traffic engineer upon a determination that the deviation is in harmony with the general intent of this section, and consistent with the public interest, safety and general welfare. Such determinations shall be in writing and shall be maintained by the traffic engineer. (Ord. 16653 § 2 (part), 2007)

Chapter 20.18

SIGN REGULATIONS

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20.18.445 C-1 districts with special circumstances.

20.18.450 C-2, C-3, C-4, Q, M-1, M-2 and M-3 districts.

20.18.455 Shopping Center comprehensive sign plans for C-2, C-3, C-4, Q, M-1, M-2 and M-3 districts.

20.18.460 C-5 district.

20.18.465 Civic and cultural district signs.

20.18.470 U-P district.

20.18.480 Historic overlay zones, historic districts and designated significant landmarks.

20.18.490 Additional on-premises signs.

20.18.500 Temporary on-premises signs.

Article V. Noncommercial Sign Regulations

20.18.510 Noncommercial messages and message substitution.

Article I. General Provisions*

20.18.010 Title and authority.

This chapter shall be known as the "Sign Ordinance for the City of El Paso, Texas." This chapter is authorized by the Texas Local Government Code Chapters 211 and 216, the city's zoning powers, and the city's inherent police powers.
(Ord. No. 17317, § 1, 5-4-2010)

20.18.020 Applicability.

A. This chapter shall apply to the incorporated area of the City of El Paso, Texas, and as to off-premises signs (as defined herein), to the extraterritorial jurisdiction area of the City of El Paso.

B. Compliance required. No person shall hereafter erect, construct, reconstruct, alter, repair, locate or relocate a sign, or remove or demolish an off-premises or on-premises sign except in accordance with the provisions of this chapter, and failure to comply with this chapter shall constitute a violation of the Code. Signs subject to this chapter may be subject to other requirements stated elsewhere within the Code, and if in conflict, the stricter provision shall control. Nothing in this chapter shall be interpreted or construed to conflict with Texas Local Government Code Section 216.903 (Regulation of Political Signs by Municipality).

C. Regulatory scope. This chapter applies to all signs, as defined herein, which are located on private property within the jurisdictional area of this chapter. This chapter also applies to land owned by a public entity, to include the city, when the city has land use regulatory authority over such land owned or occupied by such public entity. This chapter applies to signs on city property or the public right-of- way except as modified by Title 13 and/or Chapter 15.08. Nothing herein waives the proprietary rights the city has as a property owner. This chapter does not apply to advertising on the city's bus benches that were authorized under the city's franchise agreement, approved prior to February 19, 2013, however, beginning February 19, 2013, new bus benches with advertising may go into operation only when an existing advertising bus bench is removed from operation, on a one-to- one exchange rate; the total number of bus benches displaying advertising may not increase. This chapter does not apply to advertising on waste containers located on sidewalks or other city property authorized under the city's franchise agreement; however, new waste containers with advertising may be put into service only when an advertising waste container appearing on a franchisee's original franchise agreement with the city is removed from operation, on a one-to-one exchange rate, so that the total number of waste containers displaying advertising may not increase for each franchisee from the number described in each franchisee's original waste container franchise with the city.

D. Additional Regulations. Signs which are outside the regulatory scope of this chapter or the jurisdiction of the city may be subject to other laws, rules, regulations and policies. A permit issued under the provisions of this chapter does not constitute compliance with county, state or federal laws, rules, regulations and policies and it is the applicant's responsibility to comply with those laws.
(Ord. No. 17317, § 1, 5-4-2010; Ord. No. 17854, § 2, 8-21-2012; Ord. No. 17960, § 2, 2-19-2013; Ord. No. 18238, § 1, 9-2-2014)

20.18.030 Purposes.

This chapter provides a comprehensive system for the regulation of signs within the city and its extraterritorial jurisdiction area, to serve the following purposes:

A. To allow adequate opportunity for the exercise of free speech by the display of a message or an image on a sign, while balancing that opportunity against the community and public interests affected by signs.

*__Editor's note__—Ord. No. 17317, § 1, adopted May 4, 2010, repealed the former Art. I, §§ 20.18.010—20.18.050, and enacted a new Art. I as set out herein. The former Art. I pertained to similar subject matter and derived from Ord. 16761 § 1 (Exh. A)(part), 2007; Ord. No. 17013, § 2, 10-14-2008; Ord. No. 17185, §§ 1—6, 9-1-2009.

B. To protect the health, safety, and general welfare of the City, its residents and to execute the policies of the City's Comprehensive Plan.

C. To enhance the aesthetic value of the city's landscape by reducing visual clutter that is potentially harmful to property values and economic development;

D. To protect adjacent and nearby properties from the impact of excessive or inappropriate signage;

E. To protect the safety and efficiency of the City's transportation network by reducing confusion and distractions to pedestrians and motorists while enhancing motorists' ability to see pedestrians, obstacles, other vehicles, and traffic signs; and

F. To preserve, protect and enhance areas of designated historical, architectural and scenic value.
(Ord. No. 17317, § 1, 5-4-2010)

20.18.035 Onsite and offsite distinction.

Within this chapter, the onsite/offsite distinction applies only to commercial messages. Onsite has the same meaning as "on-premise" and "point-of-sale" and "point-of-purchase."
(Ord. No. 17317, § 1, 5-4-2010)

20.18.040 Findings.

In adopting this chapter, the city council makes the following findings:

A. That the number, sizes and height of signs in the city, both off-premises and on-premise, is unduly distracting and confusing to motorists and pedestrians, creates traffic hazards, and reduces the effectiveness of signs needed to direct the public;

B. That the appearance of the city, particularly that of its residential and light commercial districts, is marred by the excessive number of signs;

C. That the aforementioned effects detract from the pleasure, safety and economic well-being of the community, and that the number of distracting signs ought to be reduced in order to lessen the detrimental effects;

D. That the use of signs in the exercise of First Amendment freedoms must be balanced against the community, neighborhood, and social impacts of such signs; and

E. That the regulations contained in this chapter are the minimum amount of regulation necessary to achieve its purposes.
(Ord. No. 17317, § 1, 5-4-2010)

20.18.050 Definitions.

Definitions. For purposes of this chapter, the following terms have these specially defined meanings. If a term is not defined hereunder, the definition contained in chapter 20.02 shall apply, provided, however, where there is conflict the definition contained in this chapter shall apply.

"Add-ons," in the context of billboards, means a design element that extends outside the structural display face on a billboard. Also called "extensions."

"Adopt-a-median sign" means a freestanding sign located in the median of a street right-of-way identifying the entity or organization that is responsible for maintaining the median where the sign is located.

"Aerial sign." See "overhead sign."

"Auxiliary sign." A sign with no commercial advertising, except for the name or logo of the business or establishment, that pertains to the safe and efficient movement of pedestrians and vehicular traffic into and out of a building or premises and that has a directional purpose secondary to the use of the lot on which it is located, such as "no parking," "entrance," "loading only," "telephone," "emergency entrance," and other similar directives.

"Billboard" means a permanent structure sign which meets any one or more of the following criteria: a) it is used for the display of off-site commercial messages; b) it is used for general advertising for hire; c) it functions as a principal or separate principal use of the land on which it is located, in contrast to functioning as an accessory or auxiliary to a principal use which is not a sign. The term "billboard" applies to all physical parts

of the sign, including display faces, structure, support poles, attached ladders, attached catwalks, and appurtenant lighting systems, and visual display systems.

"Bulletin" means a billboard with a sign face area equal to or greater than three hundred square feet of image display area, but less than six hundred seventy-two square feet of image display area.

"Building; marker sign." A sign indicating the name of a building, date of construction, or other incidental information about its construction and/or history. Includes cornerstones, foundation stones, and similar devices.

"Business day" means a day on which City Hall is open to the public for regular business.

"Canopy sign" means a wall sign suspended from, mounted on or otherwise supported by a canopy, arcade or portal.

"CEVMS." See "changeable electronic variable message sign."

"Changeable electronic variable message sign," also referred to by the acronym CEVM, means a sign which uses electronic technology that is capable of displaying changeable or intermittent images, such as by turning on or off various lighting elements. The term includes any illuminated sign on which such illumination is not kept stationary or constant in intensity and color at all times when such sign is in use, or which changes the visual image more than one time per twenty-four-hour period. The term includes display technology such as LED (light emitting diode) or digital displays which can vary in color or intensity, or any system which is functionally equivalent even if the message is static. The term also includes any display, or device, which changes the "static" message or copy on the sign, in "slide show" fashion, by electronic means.

"Commercial message" means an image or message which proposes or promotes a commercial transaction, or concerns the economic interests of the advertiser and/or the audience. Contrast: noncommercial message.

"Commercial mascot" means a person or live animal decorated or attired with commercial advertising insignia and displayed to the public for commercial advertising purposes. Includes sign clowns, sign twirlers, and "human sandwich board" type signs.

"Community service sign." A sign displaying a non-commercial message relating to an event or activity sponsored by a governmental organization.

"Construction sign" means a sign displayed on a construction site during the time that actual construction is continuing.

"Copy" means the visually communicative elements of a sign.

"Directory sign" means a wall or monument sign that provides a listing of names of the tenants and space numbers for a multi-tenant building, lot or park.

"Display face" or "display area" means that portion of a physical structure which can be used for the display of copy.

"Establishment" means any legal use of land, other than long-term residential, which involves the use of structures subject to the Building Code and the presence of human beings on the premises more than 20 hours per week. By way of example and not limitation, this definition includes businesses, factories, farms, schools, hospitals, hotels and motels, offices and libraries but does not include single-family homes, mobile homes, residential apartments, residential care facilities, or residential condominiums. The term does not include automated facilities, such as electrical power transformer stations, broadcast towers, vending machines, etc.

"Externally illuminated sign" means the illumination of a surface of a sign from an external source of light intentionally directed upon the sign. Also known as "indirectly illuminated sign." Contrast: internally illuminated sign.

"Extraterritorial jurisdiction" has the meaning stated in Texas Local Government Code 42.021.

"Flag" means any fabric, banner, or bunting containing distinctive colors, patterns, or design

that displays the symbol(s) of a nation, state, local government, company, organization, belief system, idea, or other meaning.

"Garage sale" means the irregular selling of used and/or hand made articles on the premises of a dwelling unit. Events commonly known as estate sales, yard sales, moving sales, and their functional equivalents, are within this definition.

"General advertising" means the business of advertising other businesses, establishments or

causes, typically for a fee or other consideration. Also known as general advertising for hire. The term applies regardless of whether a given message is commercial, noncommercial, or "public service" in nature.

"Home occupation sign" means a wall sign indicating the name, address or business, in any combination, of a code-compliant home occupation operated by the occupant at that residence.

"Inflatable advertising device" means a device which is inflated with air or another gas, or which is activated by wind, air, or propelled gas, and used for outdoor advertising purposes.

"Internally illuminated sign" means the illumination of an electric sign with a source of light within the sign.

"Junior" means a billboard with a sign face area not greater than seventy-two square feet.

"LED or light emitting diode" means a semiconductor diode that emits light when conducting current; as used in this chapter, the term also includes functionally equivalent technologies.

"Marquee sign" means a wall or projecting sign suspended from, mounted on or otherwise supported by a marquee, such as a canopy entrance.

"Mobile billboard sign" means a motor vehicle or trailer which is used for the display of general advertising for hire.

"Monument sign" means a freestanding sign with a one hundred percent width base; however, the sign may be supported by an internal pipe structure. Base materials may include unpainted brick, stone, or other natural material such as adobe or rammed earth (or similar veneer). Skirts shall also be constructed of a minimum three millimeter aluminum, excluding sheet metal. Also known as "ground sign."

"Multi-tenant sign" means a sign displaying messages sponsored by three or more or establishments, each of which holds a separate certificate of occupancy, located on the same lot or premises.

"Noncommercial message" means a communicative visual image not pertaining to commercial matters. Noncommercial messages commonly concern religion, politics, social commentary and other matters of public debate. Contrast: commercial message.

"Nonconforming sign" means a sign which was legally erected prior to enactment or amendment of this Code and which has been maintained in compliance with the El Paso City Codes in effect at the time of installation, but which does not conform to the current provisions of the sign code or other applicable city ordinances. Also referred to as a legal nonconforming sign.

"Off-premises sign," also called offsite or non-point-of-sale sign means a sign displaying a commercial message that pertains to a business, person, organization, activity, event, place, service or product not principally located, or primarily manufactured, or sold on the premises on which the sign is located. Also known as "off-site sign." The on-premise/off-premises distinction applies only to commercial messages.

"On-premises sign," also called an onsite or point-of-sale sign, means a sign advertising an establishment, business, person, activity, good, product or service located on the premises where the sign is installed and maintained. In the context of construction signs, all establishments involved in the construction are considered on-premises during the time of construction. Products or services which are expected to be offered at the same location in the near future also qualify as "on-premise."

"Overhead sign" means a sign which is visible only from above, as from an airplane or helicopter, and is generally not visible to, or oriented for viewing by, persons on the ground.

"Planning official" shall be as defined in Section 1.04.030 of this Code.

"Planning division" means the planning division of the city development department.

"Pole sign" means a freestanding sign that is supported from the ground by pole(s) or a three-dimensional support structure that is not attached to a building and does not fit the definition of a monument sign.

"Portable sign" means an inanimate sign which, by virtue of its physical structure, is easily moved from one location to another. Common examples include signs on vehicles, trailers, or wheels.

"Poster" means a billboard with a display face area equal to or greater than seventy-two square feet but less than three hundred square feet.

"Primary or principal sign" means the monument or pole sign along a street frontage selected by the establishment as defined in 20.18.450.

"Real estate sign" means a temporary sign whose message pertains to a proposed economic transaction (sale, lease, rent, etc.) of real estate. Signs related to transient occupancy, such as rates and vacancies at hotels, motels, inns, and bed and breakfast facilities, are not within this definition.

"Roof sign" means a sign that is mounted on a roof or projects above the highest point of the roof line, parapet, or fascia of a building. A sign mounted on a mansard roof is a wall sign, not a roof sign.

"Secondary advertising sign" means an on-premises sign placed on private property, which is not the primary sign intended for advertising.

"Shingle sign" means a wall sign that projects from the face of a building and is suspended from a metal structure, awning, canopy or marquee, or wall.

"Sign" means any outdoor display surface, structure, search light, banner, pennant, inflatable and airborne device, whether mounted on land, air, or water, which is visible from any portion of the public right-of-way to vehicular or pedestrian traffic, a principal purpose of which is to attract attention to a communicative visual or graphic image. The term "sign" is inclusive of both on- and off-premises signs, including billboards, and any moving part, lighting, sound equipment, framework, background material, structural support, or other part thereof. A display, device, or thing need not contain lettering to be a sign. Notwithstanding the generality of the foregoing, the following are not within this definition:

- Overhead signs or banners towed behind aircraft.
- Architectural features. Decorative or architectural features of buildings (not including lettering, trademarks or moving parts), which do not perform a communicative function.
- Fireworks.
- Foundation stones and cornerstones which are permanent in nature and incapable or not intended for modification once installed.
- Grave markers, grave stones, headstones, mausoleums, shrines, and other markers of the deceased.
- Holiday and cultural observance decorations on private residential property which are on display for not more than 45 calendar days per year (cumulative, per parcel or use or dwelling unit).
- Inflatable games and gymnasiums. Inflatable, temporary, moveable, gymnasium devices commonly used for children's birthday parties, and similar devices. Also called "party jumps."
- Manufacturers' marks. Marks on tangible products, which identify the maker, seller, provider or product, and which customarily remain attached to the product even after sale.
- Mass transit graphics. Graphic images mounted on duly licensed and authorized mass transit vehicles that legally pass through the City Merchandise on public display and presently available for purchase on-site;
- News racks and newsstands;
- Personal appearance. Items or devices of personal apparel, decoration or appearance, including tattoos, makeup, wigs, costumes, masks, etc. (but not including commercial mascots or hand-held signs or appliances worn for the principal purpose of holding a sign);
- Search lights and klieg lights when used as part of a search and rescue or other emergency service operation; this exclusion does

not apply to search lights or klieg lights used as attention attracting devices for commercial or special events;

- Shopping carts, golf carts, horse drawn carriages, and similar devices; any motorized or self-propelled vehicle which may be legally operated upon a public road is not within this exclusion;
- Symbols of non-commercial organizations or concepts including, but not limited to, religious or political symbols, when such are permanently integrated into the structure of a permanent building which is otherwise legal; by way of example and not limitation, such symbols include stained glass windows on churches, carved or bas relief doors or walls, bells, religious statuary, etc.
- Vehicle and vessel insignia on street legal vehicles and properly licensed watercraft or aircraft: license plates, license plate frames, registration insignia, non-commercial messages, messages relating to the establishment of which the vehicle or vessel is an instrument or tool (not including general advertising) and messages relating to the proposed sale, lease or exchange of the vehicle or vessel;
- Vending machines, product dispensing devices and automated product intake devices which do not display offsite commercial messages or general advertising messages; by way of example and not limitation, "automated product intake devices" means machines which accept recycle materials, or "book return" slots at libraries, or "leave your clothes here" boxes at laundry places;
- Window displays. The display of merchandise in a store window and offered for sale.

"Sign cut-outs" means the following:

A. The area of sign face extension available to complete the artwork on a billboard.

B. The portion of the sign structure area of a monument sign that is completely open or void.

"Sign height" means the following:

1. For freestanding signs, the vertical measurement between the highest part of the sign, excluding all billboard add-ons, and the ground level upon which the sign is located;

2. For wall and all other signs, the vertical measurement of the sign area.

3. Small format billboard means a billboard which has a display face of less than 72 square feet.

"Special event directional sign" means a temporary sign providing direction information to a properly authorized special event that is open to the public.

"Static billboard" means a billboard which displays a single visual image that does not change more frequently than once per 24-hour period and does not include LED or CEVM or functionally equivalent technology.

"Structure area" means the entire area of a monument sign structure, which is computed by multiplying the sign height by the sign structure width.

"Structure support width" applies to freestanding signs and means the width of the three-dimensional support structure(s) that extends from the top of the sign structure to the ground.

"Subdivision identification sign" means a monument or wall sign located at a main entrance of a housing subdivision.

"Temporary banner" means a temporary sign composed of lightweight fabric or similar material used to attract visual attention. Flags are not within this definition.

"Temporary active motion inflatable" means a temporary type of inflatable sign utilizing wind baffles and fabric combined with a vortex of air created by a mechanical air system to allow the inflatable to dance and move, and which does not contain any words, numerals, trademarks, pictures, designs, or objects. Such devices are also known as "aircrows," "wind dancers" and "air dancers."

"Temporary construction sign" means a temporary sign located on a construction site, typically used to display messages concerning the owner, occupant, contractor, architect, engineer, financial institution, real estate company or similar entities involved with the construction at that site.

"Temporary sign" means a sign which, by virtue of its construction from lightweight or flimsy materials, and construction or installation by hand or with ordinary hand tools, is not suitable for long term display.

"Temporary inflatable sign" means an inflatable advertising device greater than two cubic feet in volume, used for advertising purposes.

"Temporary special event sign" means a temporary sign advertising a properly authorized special event and located at the site of the event.

"Temporary subdivision kiosk signs" means a sign that shall include any or all of the following: the name of the subdivision(s), the name of the developer or subdivider of record, the name of the homebuilder(s) and a descriptive statement describing the development (e.g. single-family homes, condominiums, etc.) and directional information including arrows or other similar symbols for the purpose of direction only.

"Tri-vision sign" means a rotating slat sign whose rotation is completed within one second and the message is stationary for at least 8 seconds following a rotation.

"Wall sign" means a sign permanently affixed to any wall or vertical portion of a building not extending beyond the elevation of the building.

"Warning and notice signs" are signs containing information or symbols about regulatory violations, hazardous conditions, or other educational messages; examples include "beware of dog," "high voltage," "no trespassing," "eviction notice," etc.

"Wayfinding sign" means a sign, map, or marker designed, constructed, installed and managed by the city located on city property or right-of-way placed by the city that guides the traveling public to key civic, cultural, visitor, and recreational destinations; educational, scholastic or artistic events; community or public interest activities or destinations; designated or recognized civic routes or trails; areas of historical or archaeological significance; or trade shows, events and festivals. Any sponsorship information contained on a wayfinding sign shall be limited to twenty percent of the sign and shall only contain the name of the sponsor.
(Ord. No. 17317, § 1, 5-4-2010; Ord. No. 17442, §§ 42—44, 10-26-2010; Ord. No. 17585, § 2, 6-14-2011; Ord. No. 17801, § 12, 6-5-2012, eff. 6-11-2012; Ord. No. 17854, § 3, 8-21-2012; Ord. No. 18134, § 3, 3-4-2014)

Article II. Administration*

20.18.100 Sign permit.

A. Sign permit required. The purpose of a permit is to ensure compliance with the provisions of this chapter. A sign permit shall be required prior to the placing, erecting, constructing, moving, installing, displaying, mounting, reconstructing, repairing, relocating, or demolishing of any sign, unless the subject sign or activity is expressly exempted from the permit requirement by this chapter or other applicable law. Signs requiring a permit shall comply with the provisions of this chapter and all other applicable laws and ordinances.

B. All new billboards erected within the city shall have the permit number affixed to the structure below the sign face. The number must be visible for a distance of fifty feet from the pole supporting the billboard.

C. Decision time. As to all signs which require a permit, the decision on the application for such permit shall be made within thirty business days of submission of a complete application. Decisions on appeals to the zoning board of adjustment shall be made by the zoning board of adjustment within 30 business days from the date

*__Editor's note__—Ord. No. 17317, § 2, adopted May 4, 2010, repealed the former Art. II, §§ 20.18.100—20.18.140, and enacted a new Art. II as set out herein. The former Art. II pertained to similar subject matter and derived from Ord. 16761 § 1 (Exh. A)(part), 2007; Ord. No. 17001, § 2, 2008; Ord. No. 17013, § 2, 10-14-2008; Ord. No. 17185, §§ 5—7, 9-1-2009.

the board hears the appeal. This time limit shall apply anew to each stage of review or appeal. After receipt of a complete sign application, the planning official shall render a decision to approve, approve with modifications or conditions, or deny the sign request. Unless the applicant waives time, failure of the planning official to issue a written decision within thirty business days shall constitute denial of the application. During the application and appeal procedures, the status quo shall be maintained, unless an existing sign, by virtue of its physical condition, presents an immediate and significant threat to the public safety, in which case it may be removed or repaired pending the outcome of the appeal.

D. Review criteria. When reviewing a sign permit application, no consideration shall be given to the proposed message or the proposed graphic design, so long as the intended message is within the protections of the First Amendment to the U.S. Constitution and/or corollary provisions of the Texas Constitution. This provision does not prevent consideration of whether a sign will or will not be used to display offsite commercial messages. Such a review shall ensure that any sign proposal is in conformance with the requirements of this chapter and other applicable law, regulation and policy.

E. Any existing moratorium imposed by ordinance of city council regarding the acceptance and issuance of permits shall not apply to the application for and the issuance of permits required under this Code when the purpose is to achieve Code compliance, or applications or permits for the repair and maintenance of existing legal signs, provided that such maintenance and repair does not structurally alter the sign.

F. Where the building official determines that a permit was issued in accordance with the law in effect at the time the sign was erected and that such permit was lost or destroyed, the building official shall provide a replacement permit when the sign permit is still valid under such law.

G. Sign permit applications must be accompanied by all applicable fees, as established by formal action of city council.

H. After a permit application has been submitted, if additional information is requested in order to process the application, then the applicant has ninety days to provide the information or the sign permit application shall be deemed to have been abandoned. One extension of time for a period not to exceed ninety days may be allowed by the permit official if the extension is requested in writing.

(Ord. No. 17317, § 1, 5-4-2010; Ord. No. 17442, § 45, 10-26-2010; Ord. No. 17686, § 2, 12-6-2011; Ord. No. 17960, § 3, 2-19-2013)

20.18.110 Application procedure.

A. Permit—Method of application. An application for a sign permit shall be made on forms as prescribed by the planning official. Such an application shall be filed with the planning division. The application shall be accompanied by any fees or bonds as specified by city council resolution. In addition to all the information required by Title 18 (Building and Construction), the application for a sign permit shall include the following:

1. Permit application—Contents. A sign permit application shall contain the location by street and number of the proposed sign structure, the PID for the property, as well as the name and address of the owner and the sign contractor or installer. One electronic copy, in a format authorized by the planning official, and three copies of the plans, fully dimensioned, shall be filed with the application, including:

a. Plot plan, fully dimensioned, showing location and dimensions of all buildings and improvements and the location of each proposed sign together with the location, setback, size and height of all existing signs on the premises/site. The street frontage shall be clearly indicated on the plan as well as the property line;

b. Elevation plan, fully dimensioned, showing height and size of each proposed sign, method of illumination and materials of construction, and if a wall sign, the exact location on the face of the building;

c. Nearest street intersections and abutting arterials;

d. Legal description of the property;

e. Zoning;

f. Written evidence that the property owner has authorized the placing of the sign(s) on the property;

g. Structural and wind load calculations;

h. Name, address and city or state sign electrical contractor license number of applicant;

i. If the proposed sign is over twenty-four feet high, the certification of an engineer licensed or registered in Texas; and

j. Structural details and circulations prepared and signed by an engineer or architect registered in the State. Such details shall be required when the area of the sign exceeds five square feet and the height of the sign exceeds six feet. Structural details shall include all attachments such as satellite dishes, sign cabinets, etc. These plans shall also be submitted electronically in a format authorized by the planning official.

2. A statement by the owner of the proposed sign as to whether the display face will be permanent, changeable, or a permanent structure with changeable elements. If the proposed sign is to be used to display commercial messages, then the applicant shall also state whether the message is to be onsite or offsite, and whether it is proposed to be used to display general advertising for hire.

B. For billboard sign demolitions and/or relocations and/or replacements.

1. Size and location of all sign(s) to be removed or relocated;

2. Photograph or digital image of all sign(s) to be removed;

3. A copy of the original permit for the sign(s) to be removed or a copy of the registration list provided to the city manager or designee, provided that the sign to be demolished, relocated or replaced must be on the registration list;

4. For billboard replacement or relocation permits for billboards removed after July 2, 2002:

a. Completed application with site plan and structural calculations;

b. Size(s), location(s) and type(s) of sign(s) removed; and

c. Copy of the demolition permit(s) for the sign(s) removed;

5. Issuance of building permits and revocation of permits shall be done in accordance with provisions of Title 18.

C. Multiple sign applications. When an application proposes two or more signs, the application may be granted either in whole or in part, with separate decisions as to each proposed sign.

D. Grounds for denial. When an application is denied in whole or in part, the planning official's written notice of determination shall specify the grounds for such denial.

E. Portable sign permits shall not be issued for a period of more than three hundred sixty-five days.

F. Revocation or cancellation. The planning official shall revoke any approval or permit upon refusal or failure of the holder thereof to comply with the provisions of this chapter and/or the terms or conditions of any permit, after written notice of noncompliance and at least ten (10) days opportunity to cure.

G. Permits issued in error. Any approval or permit issued in error may be summarily revoked at any time by the city upon written notice to the holder of the reason for the revocation.

(Ord. No. 17317, § 1, 5-4-2010; Ord. No. 17442, § 46, 10-26-2010; Ord. No. 17960, § 4, 2-19-2013)

20.18.115 Appeals.

All sign permit applications shall be initially reviewed by the director. When the director issues a decision on a sign permit application, or when the time for doing so has expired without a written decision, then the applicant or any concerned person may appeal to the zoning board of adjustment under the provisions of 2.16.040 of the El Paso City Code. The appeal shall be processed under the same procedures specified for appeals to the zoning board of adjustment. The zoning board of adjustment shall hold a duly noticed public hearing thereon, and issue a written decision thereon,

within 30 business days. Failure of the board to render a decision within the time specified hereunder shall deem the appeal denied. The written decision shall make findings and state reasons, supported by evidence in the record, for the decision. In determining the appeal, the zoning board of adjustment shall not consider message content or graphical design of the sign, unless the message or image has no protection under the First Amendment to the U.S. Constitution.
(Ord. No. 17317, § 1, 5-4-2010)

20.18.120 Maintenance.

A. Every sign, including those specifically exempt from this Code in respect to permits and permit fees, shall be maintained in good structural condition at all times. All signs shall be kept neatly painted, including all metal parts and supports thereof, except those portions that are galvanized or of rust-resistant material. The building official shall inspect all signs and shall have the authority to order the painting, repair, alteration or removal of any sign which constitutes a hazard to safety, health or public welfare by reason of inadequate maintenance or dilapidation. The owner of the property on which a sign is located and the owner of the sign shall be jointly and severally responsible for the conditions of the area occupied by the sign and shall be required to keep the area clean, sanitary and free from rubbish; and failure to comply with this section shall constitute a violation of this Code. For purposes of responsibility, the owner of the property refers, jointly and severally, to the legal owner of the property, as well as to all parties holding the present right of possession and control.

B. Billboard maintenance and repair. The following are considered to be routine maintenance activities that do not require a permit:

1. The replacement of nuts and bolts;
2. Nailing, riveting, or welding;
3. Cleaning and painting;
4. Changing of the advertising message;
5. The replacement of minor parts if the materials of the minor parts are the same type as those being replaced and the basic design or structure of the sign is not altered;
6. Changing all or part of the sign face structure but only if like materials are used.

C. The following are customary maintenance activities that require a permit before initiation:

1. Replacement of poles, but only if not more than one-half of the total number of poles of the sign structure are replaced in any twelve-month period and the same material is used for the replacement poles; and
2. Adding a catwalk to the sign structure.

D. The following are examples of substantial changes that require a permit application before the initiation of such an activity; however, legal nonconforming signs may not engage in such maintenance activities and will lose their legal nonconforming status if they engage in such maintenance, regardless of whether or not a permit was issued:

1. Adding lights to an unilluminated sign or adding more intense lighting to an illuminated sign whether or not the lights are attached to the sign structure;
2. Changing the number of poles in the sign structure;
3. Adding permanent bracing wires, guy wires, or other reinforcing devices, except if the structure is modified to convert a static sign to a CEVM sign to conform with the current IBC Code;
4. Changing the material used in the construction of the sign structure, such as replacing wooden material with metal material;
5. Adding faces to a sign or changing the sign configuration;
6. Increasing the height of the sign;
7. Changing the configuration of the sign structure, such as changing a "V" sign to a stacked or back-to-back sign, or a single face sign to a back-to-back sign; and
8. Moving the sign structure or sign face in any way unless the movement is made in accordance with a relocation or replacement.

E. An added catwalk must meet occupational safety and health administration guidelines. (Ord. No. 17317, § 1, 5-4-2010; Ord. No. 17960, § 5, 2-19-2013)

20.18.130 Removal of signs.

A. After inspection by the building official, the following signs may be subject to removal by the city, in accordance with the procedure enumerated herein; however, the city may at any time under its police powers immediately remove signs which constitute and immediate danger to persons or property without going through the procedures identified herein:

1. Signs or their supporting structures which appear to the building official to have become abandoned, neglected or made unattractive by missing letters, panels, lights, faded or peeling paint or graffiti;

2. Any sign which constitutes a hazard to safety, health or public welfare by reason of inadequate maintenance or dilapidation;

3. Any sign erected without permit that cannot be registered under the provisions in this chapter.

B. Procedure. Except as provided herein, prior to the removal of a sign by the city, the building official shall follow the following procedure:

1. The building official shall inform the permit holder, if a permit has been issued; if no permit has been issued, the building official shall send a written notice, via certified mail, to the owner, if the owner is known, by mailing a written notice to the last known address of the owner, or lessee of the sign if that person is identified on the sign or is otherwise known to the building official, to remove such sign and structure or to cure the defect resulting from its neglect within a period of ten days after receipt of notification of violation of this chapter.

2. If the permit holder, owner, or lessee is unknown or cannot be reached, the building official shall publish a legal notice identifying the sign, its location and the corrective action required. The legal notice shall be given by any contemporary means of information sharing, including, but not limited to, publication in a newspaper of general circulation in the city and placement on the city's official website.

3. If no response is received by the building official within ten working days from the date of receipt of notification, or five working days after the date of publication, the building official shall refer the case to the building and standards commission and the case shall be processed under the procedures of Chapter 2.38 of the El Paso City Code.

C. An on-premises sign shall be removed in compliance with the Local Government Code Title 7 Subtitle A. Sec. 216.003.
(Ord. No. 17317, § 1, 5-4-2010)

20.18.140 Prohibited signs.

In addition to the list of prohibited signs stated below, any sign erected in violation of the city's building, electrical, lighting, or other applicable local, state or federal regulations, not expressly authorized by the code, a sign not specifically authorized by action of city council or specifically exempted from the provisions hereof, is prohibited within the corporate limits of the city and, as to billboards only, the city's extraterritorial jurisdiction. The following sign types are prohibited:

A. New static or CEVM billboards except as provided herein.

B. Off-premises commercial wall signs, except as provided herein.

C. Off-premises portable signs or any portable sign that is electrical or is more than seven feet in height including the support structure.

D. Wall signs that extend beyond the elevation of the building more than three feet.

E. Any sign which resembles an official traffic sign or signal or that bears the words "Stop," "Go," "Slow," "Caution," "Danger," "Warning" or similar words, or that bears symbols communicating similar meanings in a manner which is likely to be confused with official traffic signs.

F. Signs which, by reason of their size, location, movement, content, coloring or manner of

illumination, may be confused with or construed to be a traffic control sign, signal or device, or the light of an emergency or road equipment vehicle, or which hide from view any street or traffic sign, signal or device.

G. Any banner, handbill whether commercial or noncommercial, advertisement, notice, circular poster, piece of paper, figure, word, or letter, or any other kind of sign printed, painted, cut, branded, stamped, marked, written, posted, pasted, installed, or affixed in any way upon any utility post or stand, upon traffic control signs or signals, or upon any public property or public right-of-way, including, but not limited to, public buildings, sidewalks, parkways, easements and curbs; unless such sign is installed or affixed pursuant to authorization granted a special privilege license or by a city ordinance, resolution, or other valid official city authorization, or is otherwise permitted or regulated in the code.

H. Signs on vehicles or trailers that are parked or located for the primary purpose of displaying a commercial message. It shall be prima facie evidence that the primary purpose of a vehicle or trailer is to display a sign if the vehicle or trailer is parked on a site, or in the same general location, for a continuous period exceeding seventy-two hours per month. This prohibition does not apply to a vehicle displaying a commercial message which pertains to the establishment of which the vehicle is an instrument, and the parking is short term and incidental to the performance of the establishment's customary activities.

I. Reserved.

J. Festoons, including tinsel, strings of ribbon, streamers and pinwheels.

K. Signs erected or maintained upon trees, painted or drawn upon rocks or other natural features.

L. Satellite dishes, cell phone, microwave or broadcast towers, operable or inoperable, used as signs.

M. Signs, any portion of which revolves or rotates at a speed greater than three revolutions per minute.

N. Animated, flashing, running light or twinkle signs, excluding CEVM signs that are permitted pursuant to the provisions of Article III of this chapter.

O. Signs projecting or displaying three-dimensional or holographic images.

P. "V" type signs with a face that protrudes from the opposite face at an interior angle greater than twenty-five degrees. This restriction shall not be construed to prohibit oval, cylindrical or box type signs.

Q. Signs located on or attached in any manner to fences or between or on the poles of another sign or light fixture, except as may be permitted herein.

R. Signs projected (from a light source) onto the sides of buildings.

S. CEVM billboards and on premise signs, except that CEVM billboards and CEVM on-premises signs which conform to the provisions of this chapter are allowed.

T. Static or CEVM billboards, except that static or CEVM billboards and CEVM on-premises signs which conform to the provisions of this chapter are allowed.

(Ord. No. 17317, § 2, 5-4-2010; Ord. No. 17960, § 6, 2-19-2013; Ord. No. 18245, § 2, 9-16-2014; Ord. No. 19300, § 1, 2-15-2022)

Article III. Billboard Regulations*

20.18.200 Zoning districts.

A. From and after the effective date of this ordinance, no new billboards may be constructed, erected, installed or modified within the corporate limits of the city, or within its extraterritorial jurisdiction, and no building permit shall be issued for the construction, erection, or modification of a new billboard or an existing billboard in the city and the city's extraterritorial jurisdiction, except as authorized by this article.

B. Static billboards or non-CEVM billboards.

***Editor's note**—Ord. No. 17317, § 2, adopted May 4, 2010, repealed the former Art. II, §§ 20.18.200—20.18.280, and enacted a new Art. III as set out herein. The former Art. III pertained to similar subject matter and derived from Ord. 16761 § 1 (Exh. A)(part), 2007.

1. Construction of new static billboard or non-CEVM billboards are prohibited unless the owner or applicant complies with the following provisions and shall only be constructed in C-2, C-3, C4, MI, M2, and M3 districts:

a. Non-transit corridors. In order to construct one new static non-CEVM billboard, the applicant must demolish and permanently remove at least one legally permitted and erected existing billboard structure of the same size.

b. Transit corridors. Interstate Highway 10, Alarneda Avenue, Dyer Street, Mesa Street, and Montana Avenue are defined as transit corridors for the purposes of this chapter. In order to construct one new static non-CEVM billboard, the applicant must demolish and permanently remove at least two legally permitted and erected existing billboard structures of the same size from any of the five transit corridors.

c. The applicant requesting the permit for a new static non-CEVM billboard shall identify the locations and total display face area of the existing billboard sign structures to be demolished, and obtain a demolition permit for each billboard sign structure to be removed prior to issuance of the permit for the new billboard. Each of the billboard structures identified to be demolished must be demolished and the entire structure completely removed prior to the construction and operation of the new static billboard.

d. The application for the replacement permit for the new static non-CEVM billboard sign shall be submitted to the planning division within nine months of the issuance of the demolition permit(s) for the removed billboard(s). If an application permit is not submitted within that time, then the replacement permit shall not be issued for the removed billboards signs and no credit shall be given for the removal of such billboard(s).

e. The size of the new static non-CEVM billboard shall be the same as the size of those billboard structures removed, except that the following shall be allowed:

1. One bulletin billboard structure shall be permitted for two existing legally permitted and erected poster billboard structures removed,

2. One poster billboard structure shall be permitted for four existing legally permitted and erected junior billboard structures removed,

3. One bulletin billboard structure shall be permitted for eight existing legally permitted and erected junior billboard structures removed;

f. If the new billboard structure is double-faced, then all structures removed shall be double-faced.

g. The new static non-CEVM billboard sign must comply with all of the provisions of this chapter and the City Code, including but not limited to electrical, plumbing, grading, etc.

C. CEVM billboards. From and after the effective date of this ordinance, no new CEVM billboards may be constructed, erected, installed or modified within the corporate limits of the city, or within its extraterritorial jurisdiction, and no building permit shall be issued for the construction, erection, or modification of a new CEVM billboard or an existing billboard in the city and the city's extraterritorial jurisdiction, except as authorized by this article.

1. Construction of new CEVM billboards is prohibited unless the owner or applicant complies with all of the following provisions and shall only be constructed in C-3, C-4, M-1, M-2, and M-3 districts:

a. For every one square foot of CEVM billboard display area converted from a static billboard, at least five square feet of static display area must be permanently and completely removed. Of the signs removed to fund this conversion exchange, at least one billboard shall be of a like size as the CEVM display installed or erected.

b. For a period of one hundred eighty days from the date this ordinance is adopted [February 19, 2013], existing static signs may be converted to CEVM signs provided that the following criteria are met:

(1) Except for setback requirements specified in Section 20.18.230, all other requirements, to include the conversion rate, of the sign code are be complied with.

(2) If a static sign is converted to a CEVM sign and does not comply with the provisions of Section 20.18.230, the converted sign shall be considered legal nonconforming and shall comply with all of the following conditions:

a. The display face shall face away at a forty-five degree angle from any R-F, R-1, R-2, R-2A, R-3, R-3A, R-4, R-5, P-RI, P-RII, RMH, PMD, A-1, A-2, A-3, A-4, A-M, A-3/O, A-O, R-MU, G-MU, I-MU, or SmartCode Zone.

b. A buffer (interstate highway, streets classified as major arterials, or a C-4 commercial district or manufacturing district) existing between the converted sign and any R-F, R-1, R-2, R-2A, R-3, R-3A, R-4, R-5, P-RI, P-RII, RMH, PMD, A-1, A-2, A-3, A-4, A-M, A-3/O, A-O, R-MU, G-MU, I-MU, or SmartCode Zone (a buffer of a minor arterial may be allowed provided that there is a setback of four hundred twenty feet from the sign and the above districts).

c. The applicant requesting the permit for a new CEVM billboard shall identify the locations and total display face area of the existing static billboard sign structures to be removed or existing demolition credits to be utilized, and obtain a demolition permit for each static billboard sign structure to be removed prior to issuance of the permit for the new CEVM billboard. Each of the static billboard structures identified to be removed must be demolished and the entire structure completely removed to grade level prior to the construction or installation of the new CEVM billboard, including the support structure, electrical connections, catwalk (if any), and special grading and post holes completely covered.

d. The new CEVM billboard sign must comply with all of the provisions of this chapter and the City Code, including but not limited to electrical, structural, and grading requirements.

2. Owner or operator responsibilities.

a. The face of the CEVM sign permit application must identify contact information for an emergency contact available to turn off the CEVM sign within twelve hours after a malfunction occurs.

b. A CEVM display shall contain a default mechanism to show a "full black" image or turn the sign off in case of malfunction, or shall be manually turned off within twelve hours of a reported malfunction. Provided, however, if after twelve hours the sign has not defaulted to "full black" or turned off, the city shall have the right to power off the sign.

c. CEVM signs shall display the permit number issued by the city for the sign on the billboard structure.

(Ord. No. 17317, § 3, 5-4-2010; Ord. No. 17442, § 47, 10-26-2010; Ord. No. 17960, § 7, 2-19-2013)

20.18.210 Time for construction.

Construction of new and converted billboards must be completed within six months after issuance of a permit. One six-month extension may be granted by the planning division upon a showing that the permittee has diligently attempted to complete the installation.

(Ord. No. 17317, § 3, 5-4-2010; Ord. No. 17442, § 48, 10-26-2010; Ord. No. 17960, § 8, 2-19-2013)

20.18.220 Size and height.

A. In zoning districts C-3, C-4, M-1, M-2, and M-3 districts on Interstate Highway 10, new static and new-CEVM may have operational display faces up to six hundred seventy-two square feet in display area, with the new static or new-CEVM being no higher than sixty feet, excluding a cutout that extends above the rectangular border of the sign, measured:

1. From the grade level of the centerline of the main-traveled way, not including a frontage road of a controlled access highway, closest to the sign at a point perpendicular to the sign location; or

2. If the main-traveled way is below grade, from the base of the sign structure.

B. In zoning districts C-3, C4, M1, M2, and M3 districts on major arterials, super arterials, or higher category arterials, new static and new-CEVM billboards may have display faces up to three hundred square feet in display area, with the

top of the sign face not more than thirty-five feet above the grade of the freeway, expressway, or interstate regulated highway.

C. Not more than eight bulletin billboards, spaced a minimum of six thousand feet apart, are permitted on Loop 375 from Interstate Highway 10 to Montana.

(Ord. No. 17317, § 3, 5-4-2010; Ord. No. 17686, § 2, 12-6-2011; Ord. No. 17960, § 9, 2-19-2013; Ord. No. 18974, § 1, 9-3-2019)

20.18.230 Setback requirements for new static and CEVM billboards.

A. New static billboards must be at least 350 feet from the property line of any residential use or the following zoning districts: R-F, R-1, R-2, R-2A, R-3, R-3A, R-4, R-5, P-RI, P-RII, RMH, PMD, A-1, A-2, A-3, A-4, A-M, A-3/O, A-O, R-MU, G-MU, I-MU, or SmartCode Zone. These setback provisions do not apply to a sign abutting a SmartCode Zone where residential use is prohibited by law.

B. New CEVM billboards must be at least 500 feet from the property line of any residential use or the following zoning districts: R-F, R-1, R-2, R-2A, R-3, R-3A, R-4, R-5, P-RI, P-RII, RMH, PMD, A-1, A-2, A-3, A-4, A-M, A-3/O, A-O, R-MU, G-MU, I-MU, or SmartCode Zone. These setback provisions do not apply to a sign abutting a SmartCode Zone where residential use is prohibited by law.

C. New static and new CEVM billboards up to seventy-two square feet in area must be thirty-five feet from the property line, as that term is defined in 20.02.746, of the following zoning districts when located on the same side of the street: C-1 and C-5. In no case shall the property line extend into the parkway or right-of-way.

D. New static and new CEVM billboards larger than seventy-two square feet must be fifty feet from the property line as that term is defined in 20.02.746, of the following zoning districts when located on the same side of the street: C-1, C-2, C-3, C-4, and C-5. In no case shall the property line extend into the parkway or right-of-way.

E. No new static or CEVM billboards will be allowed within 35 feet of a freestanding on- premises sign on the same side of the street.

(Ord. No. 17317, § 3, 5-4-2010; Ord. No. 17960, § 10, 2-19-2013)

20.18.240 Spacing for billboards.

A. New Static, Non-CEVM billboards, and new CEVM billboards shall be spaced 1,500 feet apart from other static and CEVM billboards on the same side of the street or road

B. All measurements made under this subsection are in feet and measured linearly perpendicular from a point on the outside edge of the display face of the sign along the roadway from which it is to be viewed, except that the measurements between a CEVM billboard and another CEVM billboard shall also wrap (continue around) the corner of any block face along the same block, but shall not cross the ROW.

C. Spacing requirements for any signs shall not be diminished by an arterial, structure, or natural feature, except as provided in Section 20.18.200 C

(Ord. No. 17317, § 3, 5-4-2010; Ord. No. 17960, § 11, 2-19-2013)

20.18.250 Special control areas.

New static, non-CEVM billboards and new CEVM billboards are prohibited in the following special control areas:

A. Significant Landmarks Designated by the United States, the State of Texas, or the City of E1 Paso.	Within 500 feet of any designated historical landmark, site or building property line.
B. All Historic Districts	Within the boundaries of the district and or within 500 feet of the center line of streets forming the boundaries of the district.
C. Designated Special Districts, Central Business District	The area bounded by Interstate Highway 10 on the north, St. Vrain/Virginia Streets on the east, Paisano Drive on the south, and by a line tangent to the west facade of Union Depot, running north to south from Interstate Highway 10 to Paisano Drive.
South El Paso	The area bounded by Paisano Drive on the north, Rio Grande International Boundary on the south, Park Street on the east, and Santa Fe Street on the west.
Ysleta Mission Area (includes the Tigua Indian Reservation)	Within a 1,200 feet radius from Mission steeple.
Mountain Development Area (MDA)	Such lands as defined by the Zoning, Grading, and Subdivision Ordinances of the City of E1 Paso for the protection of the Franklin Mountains.
D. Freeway Interchanges	Areas Restricted From Signage
I-10 at U.S. 54	Within 1,000 feet from right-of-way line from Raynolds on the east, Yandell on the north, Gramma on the west, and junction with the Paisano/Juarez exits on the south.
U.S. 54 at Loop 375 (Cesar Chavez Border Highway)	Within 1,000 feet from right-of-way line from junction of I-10 and U.S. 54 to junction with Loop 375, including the Cordova Port of Entry.
I-10 at Loop 375 (Transmountain Road)	Within 1,500 feet of this intersection.
I-10 at Loop 375 (Americas Avenue)	Within 1,500 feet of this intersection.
E. Designated Scenic Corridors	Within 1,000 feet from either right-of-way line of an arterial within the following scenic corridors:
	Loop 375 (Cesar Chavez Border Highway and Americas Avenue) from Santa Fe Street to I-10
	Zaragoza Road from Zaragoza Port of Entry to Alameda Avenue
	I-10 from Schuster Drive to the Central Business District
	Mesa Street from Sun Bowl Drive to the Central Business District

	Rim Road
	Scenic Drive
	Schuster Drive/Murchison Drive
	McKelligon Canyon Road
	Alabama Drive/Magnetic Drive
	Airport Drive
	Fred Wilson Avenue
	U.S. 54 from Hondo Pass Avenue to the Texas/New Mexico State line
	Alameda Avenue from Loop 375 (Americas Avenue) to Zaragoza Road
	Old Gary-Artcraft Road/Paseo del Norte Road
	Country Club Road/Westside Drive
	Diana Drive from U.S. 54 to Dyer Street
	Doniphan Drive
	Resler Drive
	E1 Paso Street
	Hondo Pass Avenue
	Martin Luther King Jr. Boulevard
	McCombs Street from U.S. 54 to the Texas/New Mexico state line
	McKinley Avenue
	Northeast Parkway
	Paisano Drive from Sunland Park Drive to Alameda Avenue
	Santa Fe Street
	Airway Boulevard
	Loop 375 from I-10 to Railroad Drive
	Stanton Street
	Spur 601
	Woodrow Bean-Transmountain Road
F. Park/open space	Within 1,500 feet of the property line.
G. School, Church or Hospital	Within 500 feet of the property line.
H. Ports of Entry	

Santa Fe/Stanton	The following area at the Santa Fe Port of Entry: Bounded by the alley in Block 43, Campbell Addition, running north-south from Paisano to the International Border, the centerline of Paisano Drive, running east-west; the centerline of the alley in Block 139, Campbell Addition, running north-south from Paisano to the centerline of Sixth Street, running east to the centerline of Block 74 thence said line running south to the International Border, the International Border being the southern boundary.
Stanton	Within the following area at the Stanton Street Port of Entry: Bounded by the centerline of the alley of Block 47, Campbell Addition, running north-south from the International Border to the centerline of Paisano Drive, the east-west to the centerline of the alley of Block 137 Campbell Addition, running north-south to the border line being the southern boundary.
Zaragoza	Within 500 feet of the centerline of Zaragoza Road, running from the bridge abutment to Socorro Road.
Cordova (including I-10/U.S. 54 and U.S. 54/ Loop 375 freeway interchanges)	Within 500 feet from the state right-of-way from Raynolds on the east, Yandell on the north, Gramma on the west, and junction with the Paisano/ Juarez exits on the south.
	Within 500 feet from the state right-of-way line from junction of I-10 and U.S. 54 to junction with Loop 375, including the Cordova Port of Entry.
New Ports-of-Entry	Within 1,500 feet from the property line of a port-of-entry.

(Ord. No. 17317, § 3, 5-4-2010; Ord. No. 17960, § 12, 2-19-2013)

20.18.260 Construction of billboards.

The following shall govern the construction of any billboard sign:

A. Stacked billboards are prohibited;

B. V-shape billboards with an angle of construction greater than forty-five degrees are prohibited. Where two structures are used for the construction of a V-shape sign, such structures shall not be separated, at their closest point, by more than two feet.

C. New CEVM displays shall not be permitted to be erected back-to-back.

(Ord. No. 17317, § 3, 5-4-2010; Ord. No. 17960, § 13, 2-19-2013)

20.18.270 Relocation of billboards.

A. Relocation of certain billboard for a city public works project or city or state roadway improvement project.

1. Legal and legal non-conforming billboards located on or overhanging a parcel of land acquired by the State of Texas for roadway expansion projects may be relocated subject to the restrictions in this section.

2. The owner of the billboard must submit a billboard relocation application, along with supporting documentation from the state requiring the relocation, within one year after the billboard is actually removed from the parcel of land. The

applicant shall pay the established fee. The relocation must be completed within one year after approval of the relocation application.

3. Except as provided in this section, relocated billboards must fully comply with the size, height, spacing, setback, and other restrictions in this title.

4. Relocation to remainder.

a. All relocated billboards must be relocated to the remainder of the tract on which the billboard is located, unless it is not possible for the following reasons:

b. There is no remainder;

c. The owner of the billboard is unable to obtain an agreement from the property owner of the remainder; or

d. The remainder is not of sufficient size or suitable configuration to allow the relocated billboard to be as visible as the original billboard from the nearest main traveled thoroughfare.

e. Billboards relocated to a remainder must comply with Section 20.22.090, and must be placed no less than five hundred feet from an existing billboard.

5. Restrictions on relocations.

a. A billboard shall not be relocated to a scenic corridor or special control area.

b. A billboard not located on a road on the state highway system must be relocated at least five hundred feet from another off-premises billboard.

c. A billboard located on a road on the state highway system must be relocated at least five hundred feet from another off-premises billboard on the same side of the freeway.

d. A relocated billboard may not have a greater sign face area than it had at its original location, except that the sign face area of multiple relocated billboards may be combined, provided that:

i. The overall number of billboards within the city is reduced;

ii. The sign face area of the combined billboard shall not exceed six hundred seventy-two square feet, the maximum size of a bulletin sign;

iii. Stacked billboards are prohibited.

e. Two one-sided billboards may be relocated to create one two-faced billboard, provided that the two faces are oriented within sixty degrees of one another.

f. All relocated billboards must be built to comply with the building code.

g. A billboard may not be relocated until demolition and other required permits have been applied for and approved by the city.

h. A billboard may not be relocated within five hundred feet of a historic district or a public park.

i. A billboard not located on a road on the state highway system may not be relocated within three hundred fifty feet of a zoning district listed in 20.18.230.A.

j. A billboard located on a road on the state highway system may not be relocated within one hundred fifty feet of a zoning district listed in Section 20.18.230.A.

k. No new properties, such as electrical, mechanical, or LED, may be added to a relocated billboard. (For example, a non-illuminated billboard may not be converted to an illuminated billboard, and a static billboard may not be converted to a digital or tri-vision billboard.)

l. The height of a relocated billboard may not exceed forty-two and one-half feet above grade of the center point of the main-traveled way. For the purposes of this section, height is measured from the centerline of the main-traveled way closest to the sign face, at a point perpendicular to the sign location. A frontage road of a controlled access highway or freeway is not considered the main-traveled way for purposes of this subsection. In the event that the main-traveled way that is perpendicular to the sign structure is below grade, sign height will be measured from the base of the sign structure.

B. Relocation of certain static billboards unrelated to a city public works project or city or state roadway improvement project.

1. Relocated static billboards which are unable to meet the provisions of this chapter upon relocation may be granted an exception and the

receiving parcel's dimensional and spacing requirements varied subject to a special permit granted by city council in conformance with Chapter 20.04 if the council determines that the enforcement of the prohibition in a particular instance:

a. Is not in the best interest of the public;

b. Constitutes waste or the inefficient use of land or other resources;

c. Does not serve its intended purpose;

d. Is not effective or necessary; or

e. For any other reason the city council, after consideration of the health, safety, and welfare of the public and the equities of the situation, determines is in the best interest of the community.

2. Relocations allowed by special permit must also comply with the following additional standards:

a. The owner of the sign and receiving parcel property owner must sign and submit a special permit application.

b. The sending site shall be used as a landscaped median, preserved open space, or park capital improvement project by the City of El Paso.

c. The detailed site development plan required as a provision of the special permit shall include:

i. Sign elevations, including size and height of structure and square footage of all sign faces.

ii. Labeled distances to all surrounding residential zones.

iii. Labeled distances to the closest on and off-premises signs.

d. The relocation must be completed within one year from special permit approval.

C. Restrictions on relocations.

1. No billboard may be relocated into any of the special control areas identified in Section 20.18.250.

2. A billboard must be relocated at least five hundred feet from another off-premises billboard on the same side of the roadway or highway.

3. A relocated billboard shall not have a greater sign face area than it had at its original location, except that the sign face area of multiple relocated billboards may be combined at the new location, provided that:

a. One bulletin billboard structure shall be permitted for two existing legally permitted and erected poster billboard structures removed,

b. One poster billboard structure shall be permitted for four existing legally permitted and erected junior billboard structures removed,

c. One bulletin billboard structure shall be permitted for eight existing legally permitted and erected junior billboard structures removed;

4. A billboard may not be relocated until demolition and other required permits have been applied for and approved by the city.

5. A billboard may not be relocated within five hundred feet of a historic district or a public park.

6. No new properties, such as electrical, mechanical, or LED, may be added to a relocated billboard. (For example, a non-illuminated billboard may not be converted to an illuminated billboard, and a static billboard may not be converted to a digital or tri-vision billboard.)

7. The relocated billboard shall have the necessary demolition credits and those credits shall be used to allow for relocation at the time of application to the city.

8. The height of a relocated billboard may not exceed forty-two and one-half feet above grade of the center point of the main-traveled way. For the purposes of this section, height is measured from the centerline of the main-traveled way closest to the sign face, at a point perpendicular to the sign location. A frontage road of a controlled access highway or freeway is not considered the main-traveled way for purposes of this subsection. In the event that the main-traveled way that is perpendicular to the sign structure is below grade, sign height will be measured from the base of the sign structure.

(Ord. No. 17317, § 3, 5-4-2010; Ord. No. 18248, § 1, 9-23-2014; Ord. No. 18362, § 1, 6-2-2015; Ord. No. 18590, § 1, 11-1-2016)

20.18.280 Lighting.

A. Intensity:

1. All CEVM displays shall be illuminated at a level no greater than 0.3 foot-candles over ambient light levels for the location and time and shall employ light cutoff devices such as, but not limited to, louvers in order to minimize light escaping above the horizontal plane. Foot-candle readings shall be measured at ground level at the following distances:

a. Signs between zero to one hundred square feet shall be measured at one hundred feet from the source;

b. Signs between one hundred one to three hundred square feet shall be measured at one hundred fifty feet from the source;

c. Signs between three hundred one to six hundred fifty square feet shall be measured at two hundred feet from the source;

d. Signs in excess of six hundred fifty-one square feet shall be measured at two hundred fifty from the source.

2. As measured from the nearest residential property line, the maximum light emanation from an adjacent digital sign display shall be 0.3 foot-candles or less.

3. A CEVM display shall be equipped with both a dimmer control and a photocell which automatically adjusts the display's intensity according to natural ambient light conditions.

4. The CEVM display shall contain a default mechanism to show a "full black" image or turn the sign off in case of malfunction or shall be turned off within twelve hours of a reported malfunction.

B. Operational requirements for CEVM billboards: A CEVM billboard display shall comply with the following standards:

1. The changeable images must be only a series of still images; moving images or images which create the appearance of motion during the static display period are prohibited;

2. The dwell time, defined as the interval of change between each individual message, shall be eight seconds, and a change of message must be accomplished within one second or less; The dwell time shall not include the one second or less required to change a message;

3. A CEVM billboard display shall not resemble or simulate any traffic control or other official signage;

4. A CEVM billboard display must be equipped with a light sensing device which automatically adjusts the display's intensity according to natural ambient light conditions; and

5. No CEVM billboard display shall be erected, installed or altered to include animation such as parts which move, blinking lights, sound, or smoke or fumes issuing from the sign.

6. Use of flashing, strobing, or scrolling line-travel test such as, but not limited to, "ticker- tape" is prohibited.

7. No CEVM billboard shall have a cabinet that extends beyond two inches from the operational face of the sign.

C. Existing signs. All CEVM displays, as defined, in existence prior to the effective date of this Ordinance shall conform to the provisions of this subsection within one year of the adoption date of this ordinance [February 19, 2013]; provided however, that incandescent or monochrome LED signs using a single display color and which are used exclusively to display text, including time and temperature signs, shall be excluded from this requirement.

(Ord. No. 17317, § 3, 5-4-2010; Ord. No. 17960, § 14, 2-19-2013)

20.18.290 Cleanliness of billboard site.

Billboard sites shall be kept free from the accumulation of filth, weeds, graffiti, trash and all other debris.

(Ord. No. 17317, § 3, 5-4-2010; Ord. No. 17960, § 15, 2-19-2013)

20.18.300 Registration of existing billboards.

Not later than seventy calendar days after the effective date of this ordinance, the owner and, if different, operator of each billboard shall submit to the city manager or designee a complete and

accurate inventory of signs erected and operational as of the effective date of this ordinance. The inventory shall identify each sign, in accordance with industry standards, and at a minimum should identify the sign by location description, latitude/longitude, type of sign (i.e. poster, junior, etc.), dimensions of the display face, orientation of the display face, current photograph of the sign, and to the extent possible Traffic Audit Bureau ("TAB") identifier. Supporting documentation for each sign, such as permits, should be provided if reasonably available. Once the inventory has been submitted in accordance with this paragraph, then the billboard signs listed in the inventory shall be considered to be legally in compliance with the Sign Code. Any billboard sign not listed on the inventory shall be in violation of this Chapter and shall be removed, unless the billboard was legally erected after the effective date of this ordinance, and complies with all provisions of this ordinance, the sign code and the E1 Paso City Code, except as otherwise provided herein. A sign properly registered under this provision need not comply with the registration requirements in Section 20.22.090.

It is the responsibility of the owner and operator to ensure that the signs submitted as part of the inventory comply with the registration provisions. However, the city will provide an opportunity for the correction of deficiencies provided that:

1. The sign inventory is submitted in a timely manner to allow the city at least thirty days to review what has been submitted.

2. If the city finds deficiencies in any submittals, the city shall notify the owner or operator and shall provide five days for the owner or operator to correct the deficiencies.

(Ord. No. 17317, § 3, 5-4-2010; Ord. No. 17442, § 49, 10-26-2010; Ord. No. 17960, § 16, 2-19-2013)

20.18.310 Temporary subdivision kiosk signs.

A. Temporary subdivision kiosk signs shall comply with the following requirements:

1. Permit required: Yes, as per Section 20.18.100, application requirements.

2. The owner or developer of the subdivision as platted must be the applicant for a subdivision kiosk sign. A maximum of four temporary subdivision kiosk signs will be permitted for approved and recorded subdivisions with twenty-five units or less. A maximum of six temporary subdivision kiosk signs will be permitted for approved and recorded subdivisions with fifty units or less. A maximum of eight temporary subdivision kiosk signs will be permitted for approved and recorded subdivisions with fifty units or more. All temporary subdivision kiosk signs must be spaced a minimum of two hundred feet from one another.

3. Maximum sign area: Subdivision kiosk sign structures shall be ladder type with individual sign panels of one foot (H) x four feet (W) on local and collector streets and one foot (H) x eight feet (W) on major and minor arterials and freeways and shall consist of uniform background color. Temporary subdivision kiosk signs can be double-sided. The panels may be divided in half vertically.

Dimensions of the ladder sign structure shall be as follows:

a. Six feet (H) × four feet (W) when the sign is located adjacent to local streets and defined by Title 19 Subdivisions.

b. Eight feet (H) × four feet (W) when the sign is located adjacent to collector streets as defined by Title 19 Subdivisions.

c. Twelve feet (H)× eight feet (W) when the sign is located adjacent to major and minor arterials and freeway as defined by Title 19 Subdivisions.

4. Location: Temporary subdivision kiosk signs are allowed in all zoning districts but are prohibited in the special control areas listed in 20.18.250 and shall not be located on public rights of way. Temporary subdivision kiosk signs shall not obstruct city rights of way or the use of sidewalks and walkways, and shall not obstruct visibility triangles.

5. Illumination: Is permitted on major and minor arterials or freeway only as specified below:

a. Externally illuminated and must meet the dark sky ordinance.

b. Solar generated illumination is permitted.

6. Additional standards:

a. Temporary subdivision kiosk signs shall not be displayed prior to the recording of the plat.

b. All temporary subdivision kiosk signs must be removed within thirty days of the sale of the last lot to the end user in the subdivision.

c. A permit for a temporary subdivision kiosk sign may be reissued every twelve months until the last lot in the subdivision is sold to the end user.

d. The provisions of this section shall extend and apply to the City of El Paso's ETJ as per Section 20.18.020 Applicability.

7. Design standards: Signage shall be made of plywood, metal material, or other durable material, and may consist of reflective material.

8. Maintenance standards: The applicant shall comply with the maintenance standards, per Section 20.18.120, Maintenance.
(Ord. No. 18134, § 4, 3-4-2014)

20.18.320 Mobile billboards.

A. This section shall apply to mobile billboards operated within the corporate limits of the city and no permit shall be issued for a mobile billboard in the city, except as authorized by this section.

B. A person shall not operate a mobile billboard on the public right-of-way without obtaining a special privilege permit in accordance with Section 15.08.160 mobile billboards. A mobile billboard operator who obtains a special privilege permit shall abide by all requirements prescribed under the applicable standards in Section 15.08.160 mobile billboards.
(Ord. No. 19300, § 2, 2-15-2022)

Article IV. On-Premises Sign Regulations

20.18.400 General.

A. Freestanding signs (pole signs and monument signs), shall comply with the following requirements in addition to specific requirements of the zoning district in which the sign is located, provided that the most restrictive regulation shall apply:

1. Where permitted, either pole signs or monument signs, in accordance with this chapter, shall be permitted at a premise, but not both;

2. Signs shall be located at least fifteen feet measured from the curbline and shall be contained entirely within private property lines, with no encroachment over public rights-of-way;

3. Spacing from other signs: at least fifty feet from any pole or monument sign; except that a property owner may not be denied a permit for an on-premises sign solely because the sign cannot be placed to have fifty feet between it and a freestanding sign on adjacent property;

4. Spacing from billboards: at least fifty feet from any billboard located on the same property; except that a property owner may not be denied a permit for an on-premises sign solely because the sign cannot be placed to have fifty feet between it and a freestanding sign on adjacent property;

5. A minimum street frontage of twenty feet is required to permit a freestanding sign;

6. Signs shall be located a minimum of thirty feet from any residential district or apartment zoning districts;

7. If the base of a sign is located within fifty feet of a residential or apartment zoning district, monument or pole sign area shall not exceed forty square feet;

8. If the total sign area of a monument sign is eighty square feet or less, the sign structure width cannot exceed three times the height of the sign. The sign structure width for all other monument signs shall not be greater than the height of that sign.

9. A changeable electronic variable message sign is permitted on a primary monument sign or a primary pole sign in a C-1, C-2, C-3, C-4, M-1, M-2 and M-3 zoning district on a minor arterial, major arterial or higher category arterial subject to the following conditions:

a. Changeable electronic variable message signs shall be in conformance with the maximum sign area requirements of Section 20.18.400.

b. A maximum of one primary sign per premise may contain a changeable electronic variable message sign. For purposes of this section, primary sign is the sign belonging to the major or primary tenant of the commercial development. For a shopping center, the changeable electronic variable message sign shall be located on the shopping center primary monument sign only.

c. Only one changeable electronic variable message sign is permitted on each side of the primary sign with a maximum of two changeable electronic variable message signs on the primary sign.

d. Except for scrolling, rolling and animated messages, each message on a changeable electronic variable message sign shall be displayed for at least eight seconds and a change of message shall be accomplished within one second.

e. Except for scrolling rolling and animated messages, change of message on a changeable electronic variable message sign shall occur simultaneously on the entire sign face.

f. Changeable electronic variable message signs shall not contain flashing lights as part of the display. Scrolling letters are permitted, provided that they do not exceed two lines. Animated messages are allowed, provided that the image is displayed for five seconds and if the image is changed, the change of the image is accomplished within one second.

g. Changeable electronic variable message signs may be located on either side of the roadway; however, each sign must only be visible from one direction of travel.

h. A changeable electronic variable message sign must be located at least one hundred fifty feet from the property line of any adjacent residential or apartment use.

i. A changeable electronic variable message sign is not permitted if the lot or premises has a changeable electronic variable message billboard.

j. A changeable electronic variable message sign shall not be used to display commercial messages relating to products or services that are not offered on the premises. However, the sign may display any variety or combination of non-commercial messages, including but not limited to public interest items not taking place on premises such as events for schools, amber alerts, and religious institutions.

k. A changeable electronic variable message sign shall have an automatic dimmer control to produce distinct illumination change from a higher illumination level to a lower level meeting the above illumination standards for the time period between one half-hour before sunset and one half-hour after sunrise.

l. Owner responsibilities.

1) The sign owner shall provide on the sign permit contact information for a person who is

available to be contacted at any time and who is able to turn off the changeable electronic variable message sign promptly after a malfunction occurs.

2) If the development services department finds that a changeable electronic variable message has malfunctioned, the owner of the sign, within 24 hours of a written notification by the department, shall correct the malfunction or power off the sign.

3) Changeable electronic variable message signs shall display on the sign, the permit number issued by the city for the sign.

m. Maximum total sign area for signs with a changeable electronic variable message sign:

	0—29.9%	**30—34.9%**	**35—39.9%**	**40—44.9%**	**45—50%**
Primary Pole Sign and Primary Monument Sign—Freeway					
All	180	160	150	140	120
Primary Pole Sign and Primary Monument Sign—Arterial					
All	135	120	112	105	90
Shopping Center Primary Monument Sign—Freeway					
5 acres and up	405	360	337	315	270
>5 acres	315	280	262	245	210
Shopping Center Primary Monument Sign—Arterial					
1 acre and up	225	200	187	175	150
>1 acre	180	160	150	140	120

10. Changeable electronic variable message signs prior to the enactment of this ordinance. An on-premises changeable electronic variable message sign meeting the criteria below is specifically authorized by city council and specifically exempted from the provisions of this section and shall be treated as though the sign is legal nonconforming and is subject to the provisions applicable to legal nonconforming signs.

a. A city application was submitted for the sign and the sign was constructed or will be constructed in conformance with the application submitted; and

b. A city permit was issued for the sign if constructed;

c. The burden is on the sign owner to prove all of the above requirements have been met.

11. A static changeable electronic price sign is permitted on a primary monument sign or primary pole sign in a C-1, C-2, C-3, C-4, M-1, M-2 and M-3 zoning district on a minor arterial, major arterial or higher category arterial subject to the following conditions:

a. Each price digit may not exceed eighteen inches in either height or width unless the parcel is adjacent to Interstate Highway 10, U.S. Highway 54, Joe Battle Blvd. or Americas Ave. where forty-eight inch maximum height and width digits are allowed; and

b. Characters for the product being sold shall not exceed the size of the associated price digit and shall also remain static; and

c. Each separate visual image shall remain in place for a minimum of thirty seconds.

B. Exceptions for Sign Standards Due to Unique Circumstances.

1. Where topography, the unique characteristics of a particular lot (i.e. road alignment, curvature of the road, utility structures), or where the location or relationship of the lot to surrounding properties are such that the signage permitted on

the property is not adequate the Director of the City Development Department or designee may vary the limitations as to height, size, or both for proposed signs up to twenty percent of the standards in commercial (C-1, C-2, C-3, C-4), mixed use (C-OP, C-1, P-C, P-I, R-MU, G-MU and I-MU), or apartment zone (A-I, A-2, A-3, A-4, A-M, PR-I, PR-II, SRR, A-0, A-3/0 and S-D), except that variances shall not be granted for obstructions from any other off-premise or on-premise signs.

2. Procedure Requirements: Applicants seeking an exception for sign standards shall provide the following information:

a. Completed sign application and fee receipt.

b. Written request with justification for exception request.

c. Site and aerial photos documenting the unique characteristics of the lot requiring the request for this exception.

d. A three dimensional rendering of both the permitted and proposed signs from ground level from both directions of the abutting right(s)-of-way.

3. In cases where the property owner disagrees with the determination of the Director of the city development department or designee. the decision may be appealed to the city plan commission.

4. Only four signs will be granted an exception at any time on any lot or shopping center. (Ord. 17001 §§ 3, 4, 2008; Ord. 16761 § 1 (Exh. A) (part), 2007)

(Ord. 17013, §§ 3, 4, 10-14-2008; Ord. 17185, § 8, 9-1-2009; Ord. No. 17585, § 4, 6-14-2011; Ord. No. 17686, § 2, 12-6-2011; Ord. No. 18245, § 3, 9-16-2014; Ord. No. 18389, § 1, 7-21-2015; Ord. No. 18698, § 1, 6-27-2017)

20.18.405 CEVM standards for superregional shopping centers.

A. A superregional shopping center CEVMS sign is permitted as a monument sign or pole sign subject to the following conditions:

1. The property shall be zoned C-4 and located on Interstate Highway 10.

2. A maximum display face area is six hundred square feet.

3. A superregional shopping center changeable electronic variable message sign may not exceed forty-five feet in height as measured from the ground at the base of the sign.

4. A superregional shopping center CEVM sign shall be mounted on a pole that shall be encased in a structure containing architectural detail consistent with other on-site development with a base at least twenty percent of the sign width.

5. A superregional shopping center changeable electronic variable message sign is permitted only on lots that are forty acres or greater in size.

6. Only one changeable electronic variable message display is permitted on each side of the sign with a maximum of two changeable electronic variable message displays per sign.

7. Superregional shopping center changeable electronic variable message signs may be located on either side of the roadway; however, each sign must only be visible from only one direction of travel.

8. A superregional shopping center changeable electronic variable message sign shall display a static message for at least eight seconds and a change of message shall be accomplished within one second and shall occur simultaneously on the entire sign face.

9. A superregional shopping center changeable electronic variable message sign is not permitted if the lot or premises already has a changeable electronic variable message billboard or static billboard.

10. A superregional shopping center changeable electronic variable message sign shall not be used to display commercial messages relating to products or services that are not offered on the premises. However, the sign may display any variety or combination of noncommercial messages, including but not limited to public interest items not taking place on premises such as events for schools, amber alerts, and religious institutions.

11. A superregional shopping center changeable electronic variable message sign shall have an automatic dimmer control to produce distinct illumination change from a higher illumination level to a lower level meeting the above illumination standards for the time period between one half-hour before sunset and one half-hour after sunrise.

12. A superregional shopping center changeable electronic variable message sign is not permitted within 500 feet from R-F, R-1, R-2, R-2A, R-3, R-3A, R-4, R-5, P-RI, P-RII, RMH, PMD, A-1, A-2, A-3, A-4, A-M, A-3/O, A-O, R-MU, G-MU, I-MU, and SCZ zoning districts.

13. A maximum of two superregional shopping center changeable electronic variable message signs per premise shall be permitted on I-10 so long as the two signs are spaced at a distance of at least one thousand five hundred feet.

14. A superregional shopping center changeable electronic variable message sign is not permitted within a special area as defined in Section 20.18.250.

15. The Superregional shopping center changeable electronic variable message signs must be under single ownership and located on one contiguous parcel at the time of sign permit issuance.

16. If a superregional shopping center has a changeable electronic variable message sign, all monument signs shall be eight feet or less in height or less; this limit does not apply to primary or principal shopping center signs.

17. Superregional shopping centers with changeable variable message signs shall submit a comprehensive sign plan.

18. Owner responsibilities:

a. The sign owner shall provide on the sign permit contact information for a person who is available to be contacted at any time and who is able to turn off the changeable electronic variable message sign promptly after a malfunction occurs.

b. If the development services department finds that a changeable electronic variable message has malfunctioned, the owner of the sign, within twelve hours of a written notification by the department, shall correct the malfunction, cause a "full black" image to be displayed, or power off the sign.

c. Changeable electronic variable message signs shall display on the sign structure the number of the permit issued by the city for the sign. (Ord. No. 17960, § 17, 2-19-2013)

20.18.410 R-F, R-1, R-2, R-2A, R-3, R-3A, R-4, R-5, RMH, PMD, and NOS districts.

A. Home occupation signs shall comply with the following requirements:

1. Permit required: no;
2. Maximum number: one per dwelling;
3. Maximum sign area: one square foot;
4. Placement: not projecting more than two inches beyond the face of the building;
5. Illumination: not permitted;
6. Additional standards: the sign may display only onsite commercial information related to the permitted home occupation, and/or any variety or combination of non-commercial messages.

B. Identification signs shall comply with the following requirements:

1. Permit required: yes;
2. Maximum number: one wall sign or one monument sign;
3. Maximum sign area: twenty square feet;
4. Maximum sign height: five feet for a monument sign;
5. Location:

a. Minimum of three feet from top of building and sides of building for wall signs,

b. Monument signs shall be in the front yard and shall have a minimum setback of five feet from any property line, except that such setback shall be fifteen feet where the property line is located at the curbline;

6. Illumination: internal or indirect; may not be flashing or intermittent;
7. Additional standards: shall only be permitted for nonresidential uses, and are not permitted for a home occupation.

C. Monument signs shall comply with the following requirements:

1. Permit required: yes;

2. Maximum number:

a. Properties less than four acres in size: one sign per street frontage, not to exceed two signs per premise;

b. Properties greater than four acres in size: two signs per street frontage;

3. Maximum sign area: one hundred square feet per sign;

4. Maximum sign height: ten feet;

5. Location: regardless of where the property line is located, no portion of the sign shall be closer than twenty feet from any driveway entrance or from the back of the curb line, and in all cases the entire sign must be erected within the property, and no portion of a sign shall extend beyond the property line;

6. Illumination: internal or indirect; may not be flashing or intermittent;

7. CEVM signs:

a. CEVM not permitted:

1) Properties zoned NOS;

2) Properties less than four acres in size;

b. Properties over four acres in size and not zoned NOS: CEVM limited to no more than fifty percent of sign area; held static for no less than one minute; CEVM shall be turned off from 9:00 p.m. to 6:00 a.m.; the sign face must be located at least one hundred fifty feet from the property line of any adjacent residential or apartment use.

8. Additional standards: shall comply with Section 20.18.400 of the El Paso City Code. (Ord. 16761 § 1 (Exh. A) (part), 2007)

(Ord. 17185, § 9, 9-1-2009; Ord. No. 17686, § 2, 12-6-2011; Ord. No. 17767, § 1, 4-17-2012; Ord. No. 18152, § 1, 4-1-2014; Ord. No. 18531, § 8, 6-28-2016; Ord. No. 18698, § 2, 6-27-2017)

20.18.420 A-1, A-2, A-3, A-4, A-M, PR-I, PR-II and SRR districts.

A. Home occupation signs shall comply with the following requirements:

1. Permit required: no;

2. Maximum number: one per dwelling;

3. Maximum sign area: one square foot;

4. Placement: not projecting more than two inches beyond the face of the building;

5. Illumination: not permitted;

6. Additional standards: shall only indicate the name and address of the occupant or a permitted home occupation.

B. Identification signs shall comply with the following requirements:

1. Permit required: yes;

2. Maximum number: one wall sign or one monument sign;

3. Maximum sign area: twenty square feet;

4. Maximum height: five feet for a monument sign;

5. Location:

a. Minimum of three feet from top of building and sides of building for wall signs,

b. Monument signs shall be in the front yard and shall have a minimum setback of five feet from any property line, except that such setback shall be fifteen feet where the property line is located at the curbline;

6. Illumination: internal or indirect; may not be flashing or intermittent;

7. Additional standards: shall only be permitted for nonresidential uses or a mobile home park, and are not permitted for a home occupation.

C. Monument signs shall comply with the following requirements:

1. Permit required: yes;

2. Maximum number:

a. Properties less than four acres in size: one sign per street frontage, not to exceed two signs per premise;

b. Properties greater than four acres in size: two signs per street frontage;

3. Maximum sign area: one hundred square feet per sign;

4. Maximum sign height: ten feet;

5. Location: no portion of the sign shall be closer than fifteen feet from the back of the curbline; if the property line is located more than fifteen feet

from the curbline, signs shall be erected within the property line, and no portion of a sign shall extend beyond the property line;

6. Illumination: internal or indirect; may not be flashing or intermittent;

7. Changeable electronic variable message sign:

a. Properties less than four acres in size: CEVM not permitted;

b. Properties greater than four acres in size: CEVM limited to no more than fifty percent of sign area; held static for no less than one minute; CEVM shall be turned off from 9:00 p.m. to 6:00 a.m.; and the sign face must be located at least one hundred fifty feet from the property line of any adjacent residential or apartment use;

8. Additional standards: shall comply with Section 20.18.400 of the El Paso City Code.

D. Wall signs shall comply with the following requirements:

1. Permit required: yes;

2. Maximum number: one sign for each apartment complex per street frontage and public entryway, not to exceed four signs per complex;

3. Maximum sign area: eighty square feet per sign, including any canopies or awnings;

4. Location: shall not project more than eighteen inches from the face of the wall or the surface of the canopy or awning; shall be erected in such a manner that building fenestration is not obscured and the architectural integrity of the building is not altered; shall not extend beyond the edges of the structure;

5. Illumination: internal or indirect; may not be flashing or intermittent;

6. Additional standards: only permitted for apartments in A-1, A-2, A-3, A-4, A-M, PR-I, PR-II and SRR districts. (Ord. 16761 § 1 (Exh. A) (part), 2007)

(Ord. No. 18698, § 3, 6-27-2017)

20.18.430 A-O, A-3/O and S-D districts.

A. Home occupation signs shall comply with the following requirements:

1. Permit required: no;

2. Maximum number: one per dwelling;

3. Maximum sign area: one square foot;

4. Placement: not projecting more than two inches beyond the face of the building;

5. Illumination: not permitted;

6. Additional standards: shall only indicate the name and address of the occupant or a permitted home occupation.

B. Monument signs shall comply with the following requirements:

1. Permit required: yes;

2. Maximum number:

a. Properties less than four acres in size: one sign per street frontage, not to exceed two signs per premise;

b. Properties greater than four acres in size: two signs per street frontage;

3. Maximum sign area: one hundred square feet per sign;

4. Maximum sign height: ten feet;

5. Location: no portion of the sign shall be closer than fifteen feet from the back of the curbline; if the property line is located more than fifteen feet from the curbline, signs shall be erected within the property line, and no portion of a sign shall extend beyond the property line;

6. Illumination: internal or indirect; may not be flashing or intermittent;

7. CEVM signs shall be allowed by right for principal uses in these zoning districts but are not permitted for home occupations; however uses other than residential shall be subject to the following:

a. Properties less than four acres in size: CEVM not permitted;

b. Properties greater than four acres in size: CEVM limited to no more than fifty percent of sign area; held static for no less than one minute; CEVM shall be turned off from 9:00 p.m. to 6:00 a.m.; and the sign face must be located at least one hundred fifty feet from the property line of any adjacent residential or apartment use.

8. Additional standards: shall comply with Section 20.18.400 of the El Paso City Code.

C. Office directory signs shall comply with the following requirements:

1. Permit required: yes;

2. Maximum number: one wall sign per office building entry not to exceed two signs per building; monument sign or other freestanding sign is not permitted;

3. Maximum sign area: two and one-half square feet per tenant not to exceed twenty-five square feet per building entry;

4. Location: shall not project more than eighteen inches from the face of the wall; shall be erected in such a manner that building fenestration is not obscured and the architectural integrity of the building is not altered; shall not extend beyond the edges of the structure;

5. Illumination: internal or indirect; may not be flashing or intermittent.

D. Wall signs shall comply with the following requirements:

1. Permit required: yes;

2. Maximum number: for nonresidential uses, one sign for each tenant in a single or multi-tenant facility per street frontage; for apartments, one sign for each apartment complex per street frontage and public entryway, not to exceed four signs per complex;

3. Maximum sign area: eighty square feet per sign, including any canopies or awnings;

4. Location: shall not project more than eighteen inches from the face of the wall or the surface of the canopy or awning; shall be erected in such a manner that building fenestration is not obscured and the architectural integrity of the building is not altered; shall not extend beyond the edges of the structure;

5. Illumination: internal or indirect; may not be flashing or intermittent;

6. Additional standards: only permitted for apartments and nonresidential uses in the A-O, A-3/O, and S-D districts, and are not permitted for a home occupation. (Ord. 16761 § 1 (Exh. A) (part), 2007)

(Ord. No. 17686, § 2, 12-6-2011; Ord. No. 18698, § 4, 6-27-2017)

20.18.440 C-OP, C-1, P-C, P-I, R-MU, G-MU and I-MU.

A. Monument signs shall comply with the following requirements:

1. Permit required: yes;

2. Maximum number: one monument sign per street frontage, not to exceed three signs per premise;

3. Maximum sign area: eighty square feet per sign;

4. Maximum sign height: ten feet;

5. Location: no portion of the sign shall be closer than fifteen feet from the back of the curbline; if the property line is located more than fifteen feet from the curbline, signs shall be erected within the property line, and no portion of a sign shall extend beyond the property line;

6. Illumination: internal or indirect; may not be flashing or intermittent;

7. Additional standards: shall comply with Section 20.18.400 of the El Paso City Code.

B. Office directory signs shall comply with the following requirements:

1. Permit required: yes;

2. Maximum number: one wall sign per office building entry not to exceed two signs per building; monument sign or other freestanding sign is not permitted;

3. Maximum sign area: two and one-half square feet per tenant not to exceed twenty-five square feet per building entry;

4. Location: shall not project more than eighteen inches from the face of the wall; shall be erected in such a manner that building fenestration is not obscured and the architectural integrity of the building is not altered; shall not extend beyond the edges of the structure;

5. Illumination: internal or indirect; may not be flashing or intermittent.

C. Wall signs shall comply with the following requirements:

1. Permit required: yes;

2. Maximum number: one wall sign for each tenant in a single or multi-tenant facility per street

frontage; for apartments, one wall sign for each apartment complex per street frontage and public entryway not to exceed four signs per complex;

3. Maximum sign area: forty percent of the building facade on each elevation, including any canopies or awnings;

4. Location: shall not project more than eighteen inches from the face of the wall or the surface of the canopy or awning; shall be erected in such a manner that building fenestration is not obscured and the architectural integrity of the building is not altered;

5. Illumination: internal or indirect; may not be flashing or intermittent.

D. Perpendicular signs shall comply with the following requirements:

1. Permit required: Yes.

2. Maximum number: Two per street frontage or pedestrian right-of-way per building.

3. Buildings must have at least one-hundred feet of continuous street frontage or pedestrian right-of-way;

4. Maximum sign area: Thirty square feet;

5. Location: A nine-foot clearance shall be maintained between the bottom edge of the perpendicular sign and the ground; shall be placed perpendicular to the wall of the building and not project more than forty-six inches;

6. Shall require a special privilege license to be obtained in conjunction with sign application where the sign projects into the right-of-way.

7. Illumination: Sign may be illuminated but digital/CEVM technology is not permitted;

8. Signs shall not project into Texas Department of Transportation Right-of-Way. (Ord. 16761 § 1 (Exh. A) (part), 2007)
(Ord. No. 18245, § 4, 9-16-2014)

20.18.445 C-1 districts with special circumstances.

Properties in the C-1 zoning district that meet the following criteria shall comply with the requirements of Section 20.18.450 (C-2, C-3, C-4, Q, M-1, M-2 or M-3):

A. The property has frontage and access on a public right-of-way that is classified in the city's major thoroughfare plan (MTP) as a minor arterial or higher; and either B or C (below);

B. The property is adjacent to and abuts property zoned C-1, C-2, C-3, C-4, Q, M-1, M-2 or M-3; or

C. The property is at least one-half acre in size. (Ord. 16761 § 1 (Exh. A) (part), 2007)

20.18.450 C-2, C-3, C-4, Q, M-1, M-2 and M-3 districts.

A. Monument signs shall comply with the following requirements:

Districts	Permit Required	Maximum Number	Maximum Height	Maximum Sign Area
Primary signs in C-2, C-3, C-4, Q, M-1, M-2 and M-3 with major or super arterial frontage (See A.1-7 after Table for additional information).	Yes	One per street frontage for premises less than six acres, but not to exceed three signs per premise; Two per street frontage for premises of six acres or more, but not to exceed four signs per premise.	25 feet	150 square feet
Primary signs in C-2, C-3, C-4, Q, M-1, M-2 and M-3 with interstate or freeway frontage (See A.1-7 after Table for additional information).	Yes	One per street frontage for premises less than six acres, but not to exceed three signs per premise; Two per street frontage for premises of six acres or more, but not to exceed four signs per premise.	35 feet above ground at the sign or the pavement grade of the freeway, whichever is greater	250 square feet

Districts	Permit Required	Maximum Number	Maximum Height	Maximum Sign Area
Shopping Center primary monument signs in C-2, C-3, C-4, Q, M-1, M-2 and M-3 with arterial frontage (See A.1-7 after Table for additional information).	Yes	One per street frontage for premises less than three acres, but not to exceed three signs per premise; Two per street frontage for premises that are between three acres and ten acres, not to exceed four signs per premise; Three per street frontage for premises that are between ten acres and 20 acres, not to exceed six signs per premise; No more than six signs for premises between 20 acres and 40 acres; No more than eight signs for premises over 40 acres.	45 feet	Less than one acre 200 square feet, More than one acre 250 square feet
Shopping Center primary monument signs in C-2, C-3, C-4, Q, M-1, M-2, and M-3 with interstate or freeway frontage (See A.1-7 after Table for additional information).	Yes	One per street frontage for premises less than three acres, not to exceed three signs per premise; Two per street frontage for premises between three acres and ten acres, not to exceed four signs per premise; Three per street frontage for premises between ten acres and 20 acres, not to exceed six signs per premise; No more than six signs per premise for premises between 20 acres and 40 acres; No more than eight signs per premise for premises over 40 acres.	45 feet above ground at the sign or the pavement grade of the freeway, whichever is greater	Less than three acres, 350 square feet; More than three acres, 450 square feet
Detached buildings in shopping centers in C-2, C-3, C-4, M-1, M-2 and M-3 (See A.1-7 after Table for additional information).	Yes	One per detached building	25 feet	80 square feet
Manufacturer identification signs in C-3 and C-4, where business inventory consists of motorized vehicles for sale, some in an outdoor location that is accessible to customers.	Yes	One per licensed manufacturer	25 feet	Combined square footage of all manufacturer signs shall not exceed 300 square feet

1. Location: No portion of the sign shall be closer than fifteen feet from the back of the curbline; if the property line is located more than fifteen feet from the curbline, signs shall be erected within the property line, and no portion of a sign shall extend beyond the property line.

2. For the purposes of this section, interstate or freeway frontage is defined as Interstate Highway 10, US Highway 54, Joe Battle Boulevard, Americas Avenue, Zaragoza Road from Joe Battle Boulevard to Sun Fire Boulevard and Montana east of Geronimo. In no case shall a freeway primary monument sign exceed fifty feet in height or a shopping center primary monument sign exceed sixty feet in height.

3. For minor and collector arterials, a primary monument sign shall not exceed eighty square feet in sign area and eight feet in height.

4. For minor and collector arterials, a shopping center monument sign shall not exceed eighty square feet in sign area and twelve feet in height.

5. For detached buildings in shopping center signs, the height shall not exceed fifteen feet along major arterials and eight feet along a minor or collector arterial.

6. Illumination: Internal or indirect; may not be flashing or intermittent.

7. Additional standards: Shall comply with Section 20.18.400 of the El Paso City Code.

B. Pole signs shall comply with the following requirements:

Districts	Permit Required	Maximum Number	Maximum Height	Maximum Sign Area
Primary signs in C-2, C-3, C-4, Q, M-1, M-2 and M-3 with arterial frontage	Yes	Premises up to one acre, not more than one per premise; premises greater than one acre up to six acres, not more than one per street frontage not to exceed two per premise; premises greater than six acres, not more than two per street frontage not to exceed four per premise	25 feet	150 square feet
Primary signs in C-2, C-3, C-4, Q, M-1, M-2 and M-3 with interstate or freeway frontage	Yes	Premises up to one acre, not more than one per premise; premises greater than one acre up to six acres, not more than one per street frontage not to exceed two per premise; premises greater than six acres, not more than two per street frontage not to exceed four per premise	35 feet above ground at the sign or the pavement grade of the freeway, whichever is greater	200 square feet
Detached buildings in shopping centers in C-2, C-3, C-4, M-1, M-2 and M-3	Yes	One per detached building	25 feet	80 square feet
Manufacturer identification signs in C-3 and C-4, where business inventory consists of motorized vehicles for sale, some in an outdoor location that is accessible to customers.	Yes	One per licensed manufacturer	25 feet	Combined square footage of all manufacturer signs shall not exceed 300 square feet

1. Location: No portion of the sign shall be if the property line is located more than fifteen feet closer than fifteen feet from the back of the curbline;

from the curbline, signs shall be erected within the property line, and no portion of a sign shall extend beyond the property line.

2. For the purposes of this section, interstate or freeway frontage is defined as Interstate Highway 10, US Highway 54, Joe Battle Boulevard, and Americas Avenue only. In no case shall a freeway primary pole sign exceed fifty feet or the height.

3. For minor and collector arterials, a primary pole sign is not permitted. Only a primary monument sign is permitted and shall not exceed eighty square feet in sign area and eight feet in height.

4. For minor and collector arterials, a shopping center pole sign is not permitted. Only a shopping center monument sign is permitted and shall not exceed eighty square feet in sign area and twelve feet in height.

5. For detached buildings in shopping center signs, the sign height shall not exceed fifteen feet along major arterial. For detached buildings in shopping center signs along minor or collector arterials, a pole sign is not permitted. Only a monument sign is permitted and shall not exceed eighty square feet in sign area and eight feet in height.

6. Illumination: Internal or indirect; may not be flashing or intermittent;

7. Additional standards: Shall comply with Section 20.18.400 of the El Paso City Code.

C. Office directory signs shall comply with the following requirements:

1. Permit required: yes;

2. Maximum number: one wall sign per office building entry not to exceed two signs per building; monument sign or other freestanding sign is not permitted;

3. Maximum sign area: two and one-half square feet per tenant not to exceed twenty-five square feet per building entry;

4. Location: shall not project more than eighteen inches from the face of the wall; shall be erected in such a manner that building fenestration is not obscured and the architectural integrity of the building is not altered; shall not extend beyond the edges of the structure;

5. Illumination: internal or indirect; may not be flashing or intermittent.

D. Wall signs shall comply with the following requirements:

1. Permit required: Yes;

2. Maximum number: For single-tenant facility and multi-tenant facilities, any number of wall signs are permitted, provided that the combined sign area does not exceed the maximum sign area per street frontage; for apartments, one wall sign for each apartment complex per street frontage and public entryway, not to exceed four signs per complex;

3. Maximum sign area: Forty percent of the building facade on one elevation with street frontage; twenty percent of the building facade on other elevations, except where the elevation or wall is within one hundred feet of and facing a residential, apartment zoning district, or special purpose district. The sign area shall include signage on any canopies or awnings;

4. Location: Shall not project more than eighteen inches from the face of the wall or the surface of the canopy or awning; shall be erected in such a manner that building fenestration is not obscured and the architectural integrity of the building is not altered.

5. Illumination: Internal or indirect; may not be flashing or intermittent.

E. Secondary Advertising Signs. Secondary advertising signs shall be freestanding or attached to light fixtures on private property, and shall not extend over the public right-of-way. Secondary advertising signs shall not be calculated as part of the total permitted sign area.

1. Sign Area.

a. Each secondary advertising sign shall maintain a minimum eight feet of clearance between the bottom of the sign and ground level.

b. No single secondary advertising sign shall exceed a maximum height of eight feet and width of three feet on each side of the pole.

2. Permit Required.

a. Secondary advertising signs may be used continuously so long as a valid permit has been issued and not revoked.

b. Permits shall be issued subject to installation in a manner that sign stability is ensured while in use and subject to approved engineering principles to withstand the minimum wind load requirements of the city as defined in the El Paso building code.

c. Changes in location of secondary advertising signs, even if relocated on the same property, but not including a change of the sign face, shall require a new permit.

d. Property owner's written authorization is required as part of a completed application.

3. Spacing. A secondary advertising sign must have a minimum of twenty-nine feet spacing from any other secondary advertising sign without regard to whether another secondary advertising sign has been properly permitted by the same or another business, and whether the signs are located on the same property.

4. Illumination. No additional illumination of any kind shall be permitted for the purpose of illuminating secondary advertising signs.

5. A maximum of two signs will be allowed per acre.

6. Secondary advertising sign will be allowed only in commercial zoning districts, and if seventy percent or more of the business inventory for sale is in outdoor locations that are accessible to customers.

F. Roof signs and roof-mounted signs shall comply with the following requirements:

1. Permit required: yes;

2. Maximum number: one sign per street frontage for single-tenant buildings, and one sign per tenant for multi-tenant buildings;

3. Minimum building height: roof signs and roof-mounted signs shall be permitted on buildings a minimum of thirty feet in height;

4. Maximum sign area: two hundred square feet;

5. Maximum height: permitted at building height-to-sign height ratio of 3:I, with the sign not to exceed ten feet in height.

6. Location: the sign shall not extend beyond the edges of the structure;

7. Illumination: internal or indirect; may not be flashing or intermittent;

G. Perpendicular signs shall comply with the following requirements:

1. Permit required: Yes.

2. Maximum number: Two per street frontage or pedestrian right-of-way per building.

3. Buildings must have at least one-hundred feet of continuous street frontage or pedestrian right-of-way;

4. Maximum sign area: Forty square feet;

5. Location: A nine-foot clearance shall be maintained between the bottom edge of the perpendicular sign and the ground; shall be placed perpendicular to the wall of the building and not project more than forty-six inches;

6. Shall require a special privilege license to be obtained in conjunction with sign application where the sign projects into the right-of-way.

7. Illumination: Sign may be illuminated but digital/CEVM technology is not permitted;

8. Signs shall not project into Texas Department of Transportation Right-of-Way. (Ord. 16761 § 1 (Exh. A) (part), 2007)
(Ord. No. 17585, §§ 5—7, 6-14-2011; Ord. No. 17721, § 1, 2-7-2012; Ord. No. 18245, §§ 5, 6, 9-16-2014; Ord. No. 18687, § 2, 5-30-2017)

20.18.455 Shopping Center comprehensive sign plans for C-2, C-3, C-4, Q, M-1, M-2 and M-3 districts.

A. Shopping Center Comprehensive Sign Plans:

1. Shopping centers may allocate the total available square footage for all primary monument, pole, and out parcel signs permitted under this chapter according to a submitted and approved Comprehensive Sign Plan (CSP).

2. The CSP shall be reviewed by the planning division for completeness and shall not be pro-

cessed until any missing information is supplied and the applicant pays the established fee. Amendments to the sign plan shall be assessed the same fee as an original CSP.

3. Administrative approval. Comprehensive sign plans shall be reviewed and approved by the zoning administrator.

4. Comprehensive sign plans shall include the following:

a. Legal description of area proposed to be developed or metes and bounds description and amount of land included certified by a professional engineer (P.E.) or registered architect;

b. Three copies of the comprehensive sign plan, showing the boundaries of the tract proposed for development; elevations or perspective of the building; location and arrangement, use, dimensions, square footage and height of all structures; yards, setbacks (number of feet); sidewalks and curb cuts; driveways; on-site parking spaces, to include loading and unloading berths; open spaces; landscape planted areas; size, screening walls; screening of on-site parking facilities;

c. Stamp or seal and signature of a professional engineer or architect preparing plans;

d. Proof of ownership, (warranty deed, title commitment, etc.);

e. The applicant shall pay the established fee;

f. The locations, dimensions, and elevations of each sign to be located within the site.

g. A table listing each sign, its permitted size under existing zoning and standard review, and the square footage allocated to the specific sign under the comprehensive sign plan.

5. Shopping centers submitting a comprehensive sign plan shall be eligible for one additional primary monument sign to be used for no more than two anchor tenants to be identified by the property owner.

6. All signs covered by the comprehensive sign plan shall be monument signs.

7. Signs covered by the comprehensive sign plan shall not be eligible for the exceptions under 20.18.400.B.

8. If the zoning administrator does not approve an applicant's CSP, the applicant may appeal the decision to the city plan commission. The applicant must file the appeal with the zoning administrator within fifteen business days from the date of the zoning administrator's decision. The zoning administrator shall place the appeal on the city plan commission agenda to be heard by within forty-five business days from the date the appeal was received.

9. Architecturally unique primary signs not also meeting the definition of monument sign may reduce the sign base below thirty-three percent when the CSP and sign elevations demonstrate a consistent theme across all shopping center signage and where the design of the primary signs is tied to the architecture of the primary building(s) within the shopping center.

(Ord. No. 18245, § 7, 9-16-2014)

20.18.460 C-5 district.

A. Monument signs shall comply with the following requirements:

1. Permit required: yes;

2. Maximum number: one monument sign per street frontage, not to exceed three signs per premise;

3. Maximum sign area: seventy-two square feet per sign; vertical dimension of the sign face shall not exceed eight feet;

4. Maximum sign height: twenty feet; except that thirty-five feet is permitted on property with arterial frontage;

5. Location: no portion of the sign shall be closer than fifteen feet from the back of the curbline; if the property line is located more than fifteen feet from the curbline, signs shall be erected within the property line, and no portion of a sign shall extend beyond the property line;

6. Illumination: internal or indirect; may not be flashing or intermittent;

7. Additional standards: shall comply with Section 20.18.400 of the El Paso City Code.

B. Office directory signs shall comply with the following requirements:

1. Permit required: yes;

2. Maximum number: one wall sign per office building entry not to exceed two signs per building; monument sign or other freestanding sign is not permitted;

3. Maximum sign area: two and one-half square feet per tenant not to exceed twenty-five square feet per building entry;

4. Location: shall not project more than eighteen inches from the face of the wall; shall be erected in such a manner that building fenestration is not obscured and the architectural integrity of the building is not altered; shall not extend beyond the edges of the structure;

5. Illumination: internal or indirect; may not be flashing or intermittent.

C. Shingle signs shall comply with the following requirements:

1. Permit required: Yes.

2. Maximum number: Four per building.

3. Maximum sign area: Six square feet.

4. Location: No portion of the bottom edge of the shingle sign shall be more than two feet below the edge of the canopy; no portion of the shingle sign shall not extend beyond the edge of the canopy; shall maintain an eight-foot clearance shall be maintained between the bottom edge of the shingle sign and the ground; shall be placed perpendicular to the front wall of the building and not project more than twenty-four inches over public rights-of-way.

5. Illumination: Not permitted.

6. Additional standards: Only permitted for business identification.

7. Shingle signs are not permitted along any building face where a perpendicular sign is also present.

D. Store front signs shall comply with the following requirements:

1. Permit required: yes;

2. Maximum number: one per ground floor tenant within a multi-tenant building;

3. Maximum sign area: thirty-two square feet;

4. Location: shall not project more than eighteen inches from the face of the wall; shall be erected in such a manner that building fenestration is not obscured and the architectural integrity of the building is not altered; shall not extend beyond the edges of the structure and shall only be located no higher than the ground floor level;

5. Illumination: internal or indirect; may not be flashing or intermittent;

6. Additional standards: shall be included as part of the calculation for the maximum wall sign area permitted for the building.

E. Wall signs shall comply with the following requirements:

1. Permit required: yes;

2. Maximum number: no maximum;

3. Maximum sign area: no maximum;

4. Location: shall not project more than eighteen inches from the face of the wall or the surface of the canopy or awning; shall be erected in such a manner that building fenestration is not obscured and the architectural integrity of the building is not altered; shall not extend beyond the vertical edges of the structure; sign may extend beyond the roof line or parapet up to fifty percent of the total square footage of the sign. Any sign extending beyond the roof line or parapet is permitted to do so only in the case of single channel letters or logos. Rectangular traditional cases, back lit or not, may not extend beyond the roof line or parapet.

5. Illumination: internal or indirect; may not be flashing or intermittent.

F. Perpendicular signs shall comply with the following requirements:

1. Permit required: Yes;

2. Maximum number: For buildings with less than fifty feet of continuous street frontage or pedestrian right-of-way, one per street frontage. Buildings with greater than fifty feet of continuous frontage or pedestrian right-of-way may receive one additional sign per ground floor tenant.

3. Shall be permitted only on building facades fronting a public street, where no parking shall be located between the building facade and the right-of-way.

4. Maximum sign area: Twenty-five square feet.

5. Location: A ten-foot clearance shall be maintained between the bottom edge of the perpendicular sign and the ground; the sign shall not be above the second story; shall be placed perpendicular to the wall of the building and not project more than forty-six inches over public rights-of-way.

6. Sign may be illuminated but digital/CEVM technology is not permitted.

7. Additional standards: Only permitted for business identification on buildings two-stories in height or greater.

8. Shall require a special privilege license to be obtained in conjunction with sign application where the sign projects into the right-of-way.

9. The sign shall be erected or mounted in such a manner that building fenestration is not obscured, the architectural integrity of the building is not altered, and that no architectural features, shall be obscured or destroyed.

10. Signs shall not project into Texas Department of Transportation ROW.

G. Roof Signs shall comply with the following requirements:

1. Permit required: Yes.

2. Maximum number: Two per street frontage or pedestrian right-of-way per building, except that additional signs up to one per tenant may be approved by the director of city development where multiple tenants occupy the required one hundred feet of required street frontage.

3. Buildings must be street oriented and have at least one hundred feet of continuous street frontage or pedestrian right-of-way;

4. Maximum sign area: One hundred square feet per sign;

5. Illumination: Sign may be illuminated but digital/CEVM technology is not permitted;

6. Shall require a special privilege license to be obtained in conjunction with sign application where the sign encroaches into the right-of-way.

7. Signs shall not project into Texas Department of Transportation Right-of-Way. (Ord. 16761 § 1 (Exh. A) (part), 2007)

(Ord. No. 17546, §§ 2, 3, 5-3-2011; Ord. No. 18043, § 1, 7-16-2013; Ord. No. 18245, § 8, 9-16-2014; Ord. No. 18460, § 1, 1-12-2016)

20.18.465 Civic and cultural district signs.

Civic and cultural district signs are not subject to the sign regulations of the base zoning district.

1. Permit required: yes.

2. Location: these signs should be located within the boundaries of the civic and cultural district boundary as defined in Section 20.10.146.

3. Off-premises advertising shall be prohibited.

4. All CEVM displays shall be illuminated at a level no greater than 0.3 foot-candles over ambient light levels for the location and time.

5. A CEVM display shall be equipped with both a dimmer control and a photocell which automatically adjusts the display's intensity according to natural ambient light conditions.

6. The CEVM display shall contain a default mechanism to show a "full black" image, or turn the sign off in case of malfunction, or be repaired, within twelve hours of receiving a written notification from the city of a malfunction.

7. The CEVM shall not resemble or simulate any traffic control or other official signage.

8. The use of flashing, strobing lights on the CEVM or any portion of the frame or mounting structure is prohibited.

9. The sign owner shall provide on the sign permit the contact information of a person who is available at all times and who is able to turn off any changeable electronic variable message sign promptly after a malfunction occurs.

(Ord. No. 18135, § 2, 3-4-2014; Ord. No. 019578, § 5, 12-12-2023)

20.18.470 U-P district.

A. Monument signs shall comply with the following requirements:

1. Permit required: yes;

2. Maximum number: one monument sign per street frontage, not to exceed two signs per premise;

3. Maximum sign area: eighty square feet;

4. Maximum sign height: ten feet;

5. Location: no portion of the sign shall be closer than fifteen feet from the back of the curbline; if the property line is located more than fifteen feet from the curbline, signs shall be erected within the property line, and no portion of a sign shall extend beyond the property line;

6. Illumination: may be directly or internally illuminated with the light source not visible from the adjacent street or public right-of-way. No flashing or intermittent illumination shall be permitted;

7. Additional standards: shall comply with the Union Plaza architectural and design guidelines; shall apply only to new construction in the U-P district.

B. Office directory signs shall comply with the following requirements:

1. Permit required: yes;

2. Maximum number: one wall sign per office building entry not to exceed two signs per building;

3. Maximum sign area: two and one-half square feet per tenant not to exceed twenty-five square feet per building entry;

4. Location: shall not project more than eighteen inches from the face of the wall; shall be erected in such a manner that building fenestration is not obscured and the architectural integrity of the building is not altered; shall not extend beyond the edges of the structure;

5. Illumination: internal or indirect; may not be flashing or intermittent;

6. Additional standards: shall only be permitted as a wall sign; shall comply with the Union Plaza architectural and design guidelines; shall apply only to new construction in the U-P district.

C. Shingle signs shall comply with the following requirements:

1. Permit required: yes;

2. Maximum number: four per building;

3. Maximum sign area: six square feet;

4. Location: no portion of the bottom edge of the shingle sign shall be more than two feet below the edge of the canopy; no portion of the shingle sign shall extend beyond the edge of the canopy; an eight-foot clearance shall be maintained between the bottom edge of the shingle and the ground; shall be placed perpendicular to the front wall of the building and not project more than twenty-four inches over public rights-of-way;

5. Illumination: not permitted;

6. Additional standards: shall comply with the Union Plaza Architectural and Design Guidelines.

D. Wall signs shall comply with the following requirements:

1. Permit required: yes;

2. Maximum number: one sign per street frontage for single-tenant buildings, and one sign per tenant for multi-tenant buildings;

3. Maximum sign area: ten percent of the building facade for single-tenant buildings on each elevation, including any canopies or awnings. For multi-tenant buildings, the sum total area of all signs shall not exceed ten percent of the building facade on each elevation, including any canopies or awnings.

4. Location: shall not project more than eighteen inches from the face of the wall or the surface of the canopy or awning; shall be erected in such a manner that building fenestration is not obscured and the architectural integrity of the building is not altered; shall not extend beyond the vertical edges of the structure; sign may extend beyond the roof line or parapet up to 50 percent of the total square footage of the sign. Any sign extending beyond the roof line or parapet is permitted to do so only in the case of single channel letters or logos. Rectangular traditional cases back lit or not, may not extend beyond the roof line or parapet.

5. Illumination: internal or indirect; may not be flashing or intermittent;

6. Additional standards: shall comply with the Union Plaza Architectural and Design Guidelines; shall apply only to new construction in the U-P district.

E. Perpendicular signs shall comply with the following requirements:

1. Permit required: Yes;

2. Maximum number: One per street frontage or pedestrian right-of-way per building. Buildings must have at least ninety feet of continuous street frontage or pedestrian right-of-way and must be at least two stories in height;

3. Shall be permitted only on building facades fronting public rights-of-way, where no parking shall be located between the building facade and the right-of-way;

4. Maximum sign area: Twenty-five square feet;

5. Location: A ten-foot clearance shall be maintained between the bottom edge of the perpendicular sign and the ground; the sign shall not be above the second story; shall be placed perpendicular to the wall of the building and not project more than forty-six inches over public rights-of-way;

6. Illumination: Sign may be illuminated but digital/CEVM technology is not permitted;

7. Additional standards: Only permitted for business identification.

8. Shall require a special privilege license to be obtained in conjunction with sign application where the sign projects into the right-of-way.

9. The sign shall be erected or mounted in such a manner that building fenestration is not obscured, the architectural integrity of the building is not altered, and that no architectural features, historic fabric, fine ornaments, or distinctive or unique carvings shall be obscured, damaged, altered or destroyed, unless otherwise approved by the El Paso Historic Landmark Commission.

10. Signs shall not project into Texas Department of Transportation Right-of-Way. (Ord. 16909 § 1 (part), 2008; Ord. 16761 § 1 (Exh. A) (part), 2007)

(Ord. No. 18043, §§ 2, 3, 7-16-2013)

20.18.480 Historic overlay zones, historic districts and designated significant landmarks.

A. Home occupation signs shall comply with the following requirements:

1. Permit required: no;

2. Maximum number: one per dwelling;

3. Maximum sign area: one square foot;

4. Placement: no portion of the sign shall project more than two inches beyond the face of the building;

5. Illumination: not permitted;

6. Additional standards: shall only indicate the name and address of the occupant or a permitted home occupation.

B. Monument signs shall comply with the following requirements:

1. Permit required: yes;

2. Maximum number: one monument sign per premise;

3. Maximum sign area: thirty square feet in C-1, C-2, C-3, C-4, C-5, Q, M-1, M-2, M-3, G-MU and I-MU districts; ten square feet in all other districts;

4. Maximum sign height: three feet in all districts, except six feet in C-1, C-2, C-3, C-4, C-5, Q, M-1, M-2, M-3, G-MU and I-MU districts;

5. Location: no portion of the sign shall be closer than fifteen feet from the back of the curbline; if the property line is located more than fifteen feet from the curbline, signs shall be erected within the property line, and no portion of a sign shall extend beyond the property line;

6. Illumination: indirect only; may not be flashing or intermittent;

7. Additional standards: the sign may display only onsite commercial information related to the permitted home occupation, and/or any variety or combination of non-commercial messages.

C. Wall signs shall comply with the following requirements:

1. Permit required: yes;

2. Maximum number: one sign for each street frontage per landmark structure or site for single-tenant buildings and one sign for each storefront for multi-tenant buildings;

3. Maximum sign area: thirty square feet in C-1, C-2, C-3, C-4, C-5, Q, M-1, M-2, M-3, G-MU and I-MU districts; ten square feet in all other districts.

4. Location: shall not project more than eighteen inches from the face of the wall or the surface of the canopy or awning; shall be erected in such a manner that building fenestration is not obscured and the architectural integrity of the building is not altered; shall not extend beyond the edges of the structure; shall not be higher than the window sill of the second story, shall be a minimum of three feet from the top and sides of the building; shall not cover any character defining architectural features or elements;

5. Illumination: indirect only; may not be flashing or intermittent;

6. Additional standards: shall only be for a nonresidential use, and are not permitted for a home occupation; administrative review approval is required from the development services department in accordance with Chapter 20.20 (Historic Landmark Preservation) prior to the issuance of a permit.

D. Perpendicular signs shall comply with the following requirements:

1. Permit required: Yes.

2. Maximum number: One per street frontage or pedestrian right-of-way per building. Buildings must have at least ninety feet of continuous street frontage or pedestrian right-of-way and must be at least two stories in height.

3. Shall be permitted only on building facades fronting a public street, where no parking shall be located between the building facade and the right-of-way.

4. Maximum sign area: Twenty-five square feet.

5. Location: A ten-foot clearance shall be maintained between the bottom edge of the perpendicular sign and the ground; the sign shall not be above the second story; shall be placed perpendicular to the wall of the building and not project more than forty-six inches over public rights-of-way.

6. Sign may be illuminated but digital/CEVM technology is not permitted.

7. Additional standards: Only permitted for business identification.

8. Shall require a special privilege license to be obtained in conjunction with sign application where the sign projects into the right-of-way.

9. The sign shall be erected or mounted in such a manner that building fenestration is not obscured, the architectural integrity of the building is not altered, and that no architectural features, historic fabric, fine ornaments, or distinctive or unique carvings shall be obscured, damaged, altered or destroyed, unless otherwise approved by the El Paso Historic Landmark Commission.

10. Signs shall not project into Texas Department of Transportation ROW.

E. All signs are subject to review by the El Paso Historic Landmark Commission for a certificate of appropriateness.

F. For performing arts centers and related buildings located in the C-5/H district (Central Business District/Historic):

The historic landmark commission shall have the authority to issue a certificate of appropriateness for signage, including, but not limited to, marquees, wall signs, perpendicular signs, and poster boxes exceeding thirty square feet and made of materials that complement the style of the structure and attributed to the era in which the building was constructed based on the historic character and architectural significance of the building.

G. For buildings within the C-5/H district (Central Business District/Historic) and within the boundary of the El Paso Downtown 2015 Plan where the purpose will serve a greater public good, further specific redevelopment goals outlined in the 2015 Plan and contribute to the economic redevelopment of the downtown area:

The historic landmark commission shall have authority to issue a certificate of appropriateness

for wall signs exceeding thirty square feet, to a maximum of five percent of the face area of the elevation of the building on which the sign is to be placed, and for location of wall signs higher than the window sill of the second story. Any such sign shall be made of materials that complement the style of the structure and attributed to the era in which the building was constructed based on the historic character and architectural significance of the building. (Ord. 16909 § 1 (part), 2008; Ord. 16761 § 1 (Exh. A) (part), 2007)
(Ord. 17185, § 10, 9-1-2009; Ord. No. 17546, § 4, 5-3-2011)

20.18.490 Additional on-premises signs.

A. Auxiliary signs shall comply with the following requirements:

1. Permit required: yes;

2. Maximum number: four;

3. Maximum sign area: ten square feet per sign;

4. Maximum sign height: three feet for freestanding auxiliary signs;

5. Location:

a. Freestanding auxiliary signs, no portion of the sign shall be closer than fifteen feet from the back of the curbline; if the property line is located more than fifteen feet from the curbline, signs shall be erected within the property line, and no portion of a sign shall extend beyond the property line,

b. Wall auxiliary signs, no portion shall not project more than eighteen inches from the face of the wall or the surface of the canopy or awning; shall be erected in such a manner that building fenestration is not obscured and the architectural integrity of the building is not altered; shall not extend beyond the edges of the structure;

6. Illumination: not permitted.

B. Awning and canopy signs shall comply with the following requirements:

1. Permit required: yes;

2. Maximum number: one per awning or canopy per premise;

3. Maximum sign area: shall be included in the maximum wall sign area calculation permitted for all wall signs, thirty-six square feet or fifty percent of the awning face area, whichever is less;

4. Maximum height: not higher than the roofline of the building to which the awning or canopy is attached;

5. Location: sign shall be mounted upon or atop the associated canopy or awning;

6. Illumination: internal or indirect; may not be flashing or intermittent;

7. Permitted districts: only permitted in U-P or C-5 districts and for gasoline stations where permitted; tenants in the C-5 district are permitted a storefront sign or awning and canopy sign, but not both.

C. Building marker signs shall comply with the following requirements:

1. Permit required: no;

2. Maximum number: one per building;

3. Maximum sign area: two square feet;

4. Maximum sign height: two feet;

5. Location: no portion of the sign shall project more than two inches beyond the face of the building;

6. Illumination: indirect;

7. Permitted districts: all.

D. Community service signs shall comply with the following requirements:

1. Permit required: yes;

2. Maximum number: two per street frontage, not to exceed four per premise;

3. Maximum sign area: thirty-two square feet;

4. Maximum sign height: eight feet;

5. Location: on walls, fences or freestanding signs, and no portion of the sign shall extend beyond the property line;

6. Illumination: not permitted;

7. Permitted districts: all;

8. Additional standards: not more than twenty percent of sign area may include advertising of the name, logo, phone number or address of the sponsoring company; a minimum of twenty feet spacing from any other monument or freestanding sign.

E. Marquee signs shall comply with the following requirements:

1. Permit required: yes;

2. Maximum number: one per street frontage;

3. Maximum sign area: shall be included in the maximum wall sign area calculation permitted for all wall signs;

4. Location: attached to the building, and if extends onto city property or city rights-of-way as authorized by a special privilege license or as otherwise authorized by the city;

5. Illumination: internal or indirect; may not be flashing or intermittent;

6. Permitted districts: commercial districts.

F. Subdivision identification signs shall comply with the following requirements:

1. Permit required: yes;

2. Maximum number: two per subdivision entrance;

3. Maximum sign area: fifty square feet per sign;

4. Maximum sign height: five feet;

5. Location: the location of subdivision identification signs shall be subject to the approval of the building official; no portion of a subdivision identification sign shall be within a public right-of-way or public easement, except where authorized by special privilege license granted by city council; a copy of the restrictive covenants or other documentation, recorded in the El Paso County real property records, shall be submitted with the sign application which creates a neighborhood association or other entity which shall provide for the perpetual maintenance of the sign if proposed to be located within a public right-of-way or public easement, or imposes a duty of maintenance of the sign on the property owner on which the sign is located;

6. Illumination: internal or indirect, may not be flashing or intermittent;

7. Additional standards: shall only be a monument sign and only include the name, logo or other identification of the subdivision.

G. Menu signs shall comply with the following requirements:

1. Permit required: no, if installed and inspected with the installation of additional signage on the property. A permit is required if the only signed installed on the property is the menu sign;

2. Maximum number: two;

3. Maximum sign area: thirty-two square feet per sign;

4. Maximum sign height: eight feet;

5. Location: The location of the menu sign shall be subject to the approval of the building official based on building code requirements, safety and traffic flow considerations; however, the sign is strictly for on-site informational purposes and, therefore, shall be oriented so as to not be readable from the fronting public street. (Ord. 16761 § 1 (Exh. A) (part), 2007)
(Ord. 17185, § 11, 9-1-2009; Ord. No. 18698, § 5, 6-27-2017)

20.18.500 Temporary on-premises signs.

A. Temporary real estate signs shall comply with the following requirements:

1. Permit required: no;

2. Maximum number: no maximum, a minimum of fifty feet is required between each sign;

3. Maximum sign area: thirty-two square feet for C-1, C-2, C-3, C-4, C-5, Q, M-1, M-2 and M-3 districts; six square feet for all other districts, exclusive of two riders not in excess of an area of six inches by thirty inches each;

4. Maximum sign height: ten feet for C-1, C-2, C-3, C-4, C-5, Q, M-1, M-2 and M-3 districts; six feet for all other districts;

5. Location: not less than three feet from public property and not less than thirteen feet from the curb;

6. Illumination: not permitted;

7. Permitted districts: all;

8. Additional standards: shall only be for the purposes of sale, lease or rent of the property; shall be removed within fourteen days of sale or lease.

B. Temporary construction signs shall comply with the following requirements:

1. Permit required: no;

2. Maximum number: one sign per street frontage, not to exceed two signs per premise;

3. Maximum sign area: sixty-four square feet for C-1, C-2, C-3, C-4, C-5, Q, M-1, M-2 and M-3 districts; thirty-two square feet for all other districts;

4. Maximum sign height: sixteen feet for C-1, C-2, C-3, C-4, C-5, Q, M-1, M-2 and M-3 districts; eight feet for all other districts;

5. Location: not less than three feet from public property and not less than thirteen feet from the curb;

6. Illumination: not permitted;

7. Permitted districts: all;

8. Additional standards: only permitted at construction sites and must be removed within thirty days after the issuance of a certificate of occupancy for the last permit of the project on the same property.

C. Temporary portable signs shall comply with the following requirements:

1. Permit required: yes;

2. Maximum number: one per premises for property less that one acre; two per premises for property one acre to five acres; three signs per premises for property greater than five acres;

3. Maximum sign height: seven feet for C-1, C-2, C-3, C-4, Q, M-1, M-2 and M-3 districts;

4. Location: no portion of the sign shall be closer than fifteen feet from the back of the curbline; if the property line is located more than fifteen feet from the curbline, signs shall be erected within the property line, and no portion of a sign shall extend beyond the property line; on corner lots, portable signs shall not be located in the area of a triangle formed by the intersecting property lines and a diagonal line joining the property lines at points twenty feet from their intersection;

5. Illumination: not permitted;

6. Permitted districts: C-1, C-2, C-3, C-4, Q, M-1, M-2 and M-3 districts; not permitted on property within historic overlay zones, historic districts or with designated significant landmarks;

7. Additional standards: portable signs shall comply with the following:

a. Maximum duration of a display at any one time shall be limited to three hundred sixty-five consecutive days,

b. Minimum of thirty days between permitted displays,

c. Portable signs shall be placed a minimum of fifteen feet from any driveway,

d. Portable signs shall be placed a minimum of three hundred feet spacing from any other portable sign,

e. Portable signs may be placed immediately adjacent to or not closer than fifty feet away from any freestanding sign,

f. Property owner's name and written evidence that the property owner has authorized the placing of the sign(s) on his property.

D. Temporary banner signs shall comply with the following requirements:

1. Permit required: no;

2. Maximum number: one sign for each tenant in a single- or multi-tenant facility per street frontage; for apartments, one sign for each apartment complex per street frontage and public entryway not to exceed four signs per complex;

3. Maximum sign area: one hundred square feet which is included in the maximum wall sign area calculation permitted for all wall signs;

4. Location: shall be securely attached to a building facade, masonry wall, or fence; shall be erected in such a manner that building fenestration is not obscured and the architectural integrity of the building is not altered; shall not extend beyond the edges of the structure no portion shall extend beyond the roof plane or outside the building envelope when attached to a building;

5. Illumination: not permitted;

6. Permitted districts: C-1, C-2, C-3, C-4, C-5, Q, M-1, M-2 and M-3; only for apartments in A-1, A-2, A-3, A-4, A-O, A-3/O, A-M, PR-I, PR-II and

SRR districts; not permitted on property within historic overlay zones, historic districts or with designated significant landmarks;

7. Additional standards: limited to thirty days only with a minimum of thirty days between displays; shall only be for the purposes of grand openings or other types of special events on the property;

E. Temporary inflatable signs:

1. Shall be installed by a licensed business as provided under Title 5 (Business, Taxes, Licenses and Regulations);

2. Shall require business to apply, obtain and pay for a sign permit for each display;

3. A display shall be for a prescribed time period using the same device at a designated location on a lot;

4. Maximum of one sign per lot at any one time;

5. Limited to property zoned C-1 (commercial), C-2 (commercial), C-3 (commercial), C-4 (commercial), M-1 (light manufacturing), M-2 (heavy manufacturing) and M-3 (unrestricted manufacturing);

6. Height of sign shall be limited to no more than the height permitted for freestanding signs on the lot;

7. Sign to be displayed for a cumulative total of no more than one hundred twenty days during any one calendar year;

8. Maximum duration of a display at any one time shall be limited to thirty consecutive days;

9. Minimum of seven days between permitted displays;

10. Location of sign shall not restrict traffic visibility onto any portion of the street frontage;

11. No sign shall be located within twenty-five feet of any high voltage electrical overhead conductor (power line);

12. Sign shall be properly secured to its moorings and other anchoring devices in accordance with applicable provisions of the Recommended Industry Minimum Standards outlined by the Inflatable Advertising Dealers Association as determined by the building official;

13. Sign shall not block any interior trapdoor or scuttle cover that leads to the roof of a building, block any ingress into the building, obstruct any fire lane or fire protection apparatus, including but not limited to, fire hydrants and other fire protection connections.

F. Temporary active motion inflatable signs:

1. Permit: no;

2. Maximum of four signs per lot at any one time;

3. Signs shall be properly maintained in a safe condition at all times without ripping, tearing or other holes;

4. Sign shall be properly secured to its moorings and other anchoring devices in accordance with applicable provisions of the Recommended Industry Minimum Standards outlined by the Inflatable Advertising Dealers Association as determined by the building official; and

5. Sign shall not block any interior trapdoor or scuttle cover that leads to the roof of a building, block any ingress into the building, obstruct any fire lane or fire protection apparatus, including, but not limited to, fire hydrants and other fire protection connections.

G. Temporary real estate banner signs. Temporary real estate banner signs shall comply with the following requirements:

1. Permit required: No;

2. Maximum number: One sign per street frontage:

3. Maximum sign area: One hundred square feet which is included in the maximum wall sign area calculation permitted for all wall signs;

4. Location: Shall be securely attached to a building facade, shall be erected in such a manner that building fenestration is not obscured and the architectural integrity of the building is not altered; shall not extend beyond the edges of the structure no portion shall extend beyond the roof plane or outside the building envelope;

5. Illumination: Not permitted;

6. Permitted districts: C-1, C-2, C-3, C-4, C-5, Q, M-1, M-2 and M-3; only for apartments in A-1, A-2, A-3, A-4, A-O, A-3/O, A-M, PR-I, PR-II and

SRR districts; not permitted on property within historic overlay zones, historic districts or with designated significant landmarks. (Ord. 16761 § 1 (Exh. A) (part), 2007)
(Ord. No. 17686, § 2, 12-6-2011; Ord. No. 18134, § 5, 3-4-2014)

Article V. Noncommercial Sign Regulations

20.18.510 Noncommercial messages and message substitution.

A. Message substitution. A noncommercial message which is within the protection of the First Amendment to the U.S. Constitution may be substituted, in whole or in part, for any message on any sign authorized by this chapter. Message substitution is a continuing right which may be exercised any number of times. No permit is required for such message substitution, unless there is a change in the physical structure of the sign displaying the message. This provision does not authorize the substitution of an offsite commercial message in place of an onsite commercial message.

B. Noncommercial messages. In addition to the noncommercial messages which may be displayed by message substitution, any noncommercial message within the protection of the First Amendment to the U.S. Constitution may be displayed on any parcel and at any time, subject to the following:

a. Maximum area cannot be greater than thirty-six square feet; and

b. Cannot be more than eight feet high; and,

c. Cannot be illuminated or have moving elements; and,

d. Are not prohibited by Section 20.18.140.

e. Permit required only when the sign qualifies as a "structure" under the building code.
(Ord. 17185, § 12, 9-1-2009; Ord. No. 17686, § 2, 12-6-2011)

Chapter 20.20

HISTORIC LANDMARK PRESERVATION

Sections:

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20.20.020 Definitions.

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20.20.040 Procedure for designation of historic landmarks and districts.

20.20.050 Historic landmarks designation criteria.

20.20.060 Acquisition of historic landmarks.

20.20.070 Historic landmark recognition.

20.20.080 Alterations and changes to landmarks and H-overlay properties.

20.20.090 Modification of certificate of appropriateness.

20.20.100 Economic hardship application procedure.

20.20.110 Enforcement.

20.20.120 Historic landmark demolition or removal.

20.20.130 Prevention of demolition by neglect.

20.20.140 Penalty for demolition or alteration without a permit.

20.20.150 Ad valorem tax incentives for historic properties.

20.20.160 Notice.

20.20.170 Severability.

20.20.180 Zoning board of adjustment.

20.20.190 Appeal to the city council.

20.20.010 Declaration of policy.

A. The city council finds and declares as a matter of public policy that the protection, enhancement, preservation and use of historic landmarks is a public necessity and is required in the interest of the culture, prosperity, education, safety and general welfare of the people. The purposes of this chapter include the following but are not limited to:

B. To protect, enhance and perpetuate historic landmarks which represent or reflect distinctive and important elements of the city's, region's, state's or nation's architectural, archaeological, cultural, social, economic, ethnic and political history and to develop appropriate settings for such places;

C. To safeguard the city's historic and cultural heritage, as embodied and reflected in such historic landmarks by appropriate regulations;

D. To stabilize and improve property values in such locations;

E. To foster civic pride in the beauty and accomplishments of the past;

F. To protect and enhance the city's attractions to tourists and visitors and provide incidental support and stimulus to business and industry;

G. To strengthen the economy of the city;

H. To promote the use of historic landmarks for the culture, prosperity, education and general welfare of the people of the city and visitors to the city;

I. To prevent the uprooting of architectural products of distinct periods, which may occur without regard to the feasibility of preserving and continuing the use of such landmarks, and without consideration of the irreplaceable loss to the people of the city of the cultural, historic and aesthetic values represented by such landmarks. (Ord. 16653 § 2 (part), 2007)

20.20.020 Definitions.

A. In addition to the definitions of Chapter 20.02, the following definitions apply only to this chapter of the code, and control if in conflict with Chapter 20.02.

1. "Addition" means a completely new structure or new component to an existing structure.

2. "Administrative review" means the approval process by which the historic preservation officer (HPO) or his designee administratively ap-

proves or denies submitted applications in accordance with the Administrative Review Design Guidelines.

3. "Alteration" means any construction or change of the exterior of a building, site or structure including, but not limited to, the erection, construction, reconstruction or removal of any structure or of an interior space designated as a landmark. Alteration shall include, but not be limited to, the changing of roofing or siding materials; changing, eliminating or adding doors, door frames, windows, window frames, shutters, fences, railings, porches, balconies, signs or other ornamentation; the changing of paint color; re-grading; fill; imploding or other use of dynamite. Alteration shall not include ordinary repair and maintenance.

a. "Alteration, major" an alteration shall be deemed to be major if it is the kind of work, which is customarily done with the aid of plans or specifications.

b. "Alteration, minor" an alteration shall be deemed to be "minor" if it is the kind of work which is customarily done without the aid of plans and which would not substantially change the external appearance of the building, site, or structure, and if new material added does not exceed one hundred square feet of floor area.

4. "Appurtenance" means any accessory or subordinate building, object or structure, fence, street furniture, fixture, vending machine, fountain or artwork, located on the grounds of an historic landmark or in an historic district.

5. "Archaeology" means the science or study of the material remains of past life or activities and the physical site or context in which they are found.

6. "Architectural style" means the architectural character and general composition of a structure, including but not limited to, the kind, color and texture of the building material and the type, design and character of all windows, door, light fixtures, signs and appurtenant elements.

7. "Area" means a specific geographic division of the City of El Paso.

8. "Building" means a structure created to shelter people or things, such as a house, barn, church, hotel, warehouse or similar structure, including a historically related complex, such as a courthouse and jail or a house and barn.

9. "Cemetery" means any site, as defined by Texas statute, which contains at least one burial, marked or previously marked, dedicated to and used or intended to be used for the permanent interment of the human dead, to include perpetual care and non-perpetual care cemeteries.

10. "Certificate of appropriateness" means the certificate issued by the historic landmark commission after review of a submitted application, and it is determined that the proposed project is appropriate for the historic district for which it is requested. It is not considered or defined as a building permit.

11. "Character-defining architectural element" means a distinctive architectural feature, quality, or combination thereof, that distinguishes one structure from another or which is unique to that structure.

12. "Cluster" means a group of cultural resources with compatible buildings, objects or structures geographically or thematically relating to and reinforcing one another through design, setting, materials, workmanship, congruency and association.

13. "Construction" means the act of adding new material to an existing building, structure or site.

14. "Contributing property" means a building, object, site or structure, in an historic district or "cluster" that contributes to the district's or cluster's historical significance through location, design, setting, materials, workmanship, and/or association.

15. "Cultural" means the quality in a society that arises from an interest in or an acquaintance with what is generally regarded as excellence in arts, literature, architecture, manners, or scholarly pursuits and/or the socially transmitted behavior patterns, arts, beliefs, institutions, and all other

products of human work that are considered as the expression of a particular period, class, community or population.

16. "Cultural resources" means districts, sites, or structures that possess integrity of location, design, setting, materials, workmanship, congruency, and association in such a way that they are symbolic of excellence in North American, Texas, or El Paso history, architecture, archeology or culture.

17. "Demolition" means any act or process that destroys, razes, or permanently impairs the structural integrity, in whole or in part, of any mobile or immobile structure governed by this chapter.

18. "Design guidelines" means the written standards adopted by the city council which are intended to provide guidelines to the historic landmark commission and historic preservation officer to govern construction to preserve the historic, cultural and architectural character of an area or of a building, object, site or structure.

19. "Economic return" means a financial profit or capital appreciation from use or ownership of a building, object, site or structure.

20. "Effect" means a change in the quality of the historical, architectural, archaeological, or cultural significance of a resource, or in the characteristics that qualify the resource as historically important.

21. "Effect, adverse" means a negative change in the quality of the historical, architectural, archaeological or cultural significance of a resource, or in the characteristics that qualify the resource as historically important.

22. "Enclosure" refers to fences, walls or other physical features used to contain open space or provide privacy.

23. "Historic district" means an area designated by city council, state or federal authority and which contains within definable geographic boundaries one or more "H-overlay" properties or clusters, including their accessory buildings, fences and other appurtenances, and natural resources having historical, cultural and archaeological significance, and which may have within its boundaries other noncontributing buildings or structures.

24. "Historic interiors" means an architecturally or historically significant interior space which remains substantially intact in terms of: (1) original configuration, (2) original volume, and/or (3) original architectural ornamentation and decoration; which exhibit surviving original historical finishes or has the potential for accurate restoration of such finishes; and which is open, to be used by, or may be used by the public.

25. "Historic landmark" also referred to as an "H-overlay" property, means those buildings, objects, sites or structures of historical, cultural, architectural or archaeological importance and whose demolition or destruction would constitute an irreplaceable loss to the quality and character of El Paso; certain inventoried interior spaces which are accessible to the public; such buildings, objects, sites or structures, their appurtenances, and the property which they are located, having been so designated by city council.

26. "Historic landmark commission ("HLC")" the commission appointed by the mayor and city council to assist in the preparation of the city's historic preservation plan, to create and review guidelines for historic districts, to review and approve, approve with conditions or deny applications relating to historic properties and to perform other functions as delineated in Title 2.

27. "Historic preservation program" city program under the direction of the city manager's office to encourage historic preservation through education, advocacy and incentives, and to oversee the application and enforcement process for historic properties.

28. "Historic preservation officer ("HPO")" means the person or persons designated by the city manager for the City of El Paso to coordinate the historic preservation program; to review and administratively approve applications, refer violations as appropriate to the enforcement authorities and provide administrative staff support to the historic landmark commission. The HPO will

coordinate the development and implementation of the historic preservation plan and the city's efforts to encourage participation in the plan.

29. "Historic preservation plan" is a supplement to the plan for El Paso relating to the preservation of historic properties.

30. "Intrusion" means a building, object, site or structure which detracts from a district's or cluster's historical significance because of its incompatibility with the district's or cluster's sense of time, place, and historical development; or its incompatibility of scale, materials, texture or color, whose integrity has been irretrievably lost; or whose physical deterioration or damage makes it infeasible to rehabilitate.

31. "Inventory" means a systematic listing of cultural, historical, architectural or archaeological resources prepared by a city, state or federal government, following standards set forth by federal, state and city regulations for evaluation of cultural properties.

32. "Landscape architectural feature" means the general arrangement of grounds including, but not limited to, the topographic grade water pooling and runoff, types and sites of plant materials, type and sites of surface materials such as decorative bark, rock, stone, gravel, concrete asphalt, brick, and the types and sites of constructions not otherwise deemed to be structures per se, such as fences, retaining walls, decks and other miscellaneous fixtures.

33. "Minor modification" means a change or changes to an approved application that is in substantial conformity with the approved plans and application.

34. "National register" means the national register of historic places maintained by the secretary of the interior.

35. "National historic landmark" means a historic property that the Secretary of the Interior has designated a national historic landmark.

36. "Noncontributing property" means a building, object, site or structure in an historic district which does not contribute to the district's or cluster's historical significance through location, design, setting, material, workmanship, feeling and association, but due to its proximity to historic landmarks and contributing properties, has the potential to affect the character of the historic district or cluster that it is located within.

37. "Object" means a material thing of functional, aesthetic, cultural, historical, archaeological or scientific value that may be, by nature or design, movable yet related to a specific setting or environment.

38. "Ordinary repair and maintenance" means any work, the purpose and effect of which is to correct or prevent any deterioration or decay of or damage to a building, object or structure or any part thereof and to restore same, as nearly as may be practicable, to its condition prior to such deterioration, decay or damage, using the same materials or those materials which are, in appearance, as close as possible to the original.

39. "Reconstruction" means the act or process of reassembling, reproducing or replacing by new construction, the form, detail and appearance of a destroyed or vanished property and its setting as it appeared at a particular period of time by means of the removal of later workmanship, or by the replacement of missing earlier work, or by reuse of original materials.

40. "Rehabilitation" means the act or process of returning a building, object, site or structure to a state of utility through repair, remodeling or alteration that makes possible an efficient contemporary use while preserving those portions or features of the building, object, site or structure that are significant to its historical, architectural and cultural values.

41. "Relocation" means any change of the location of a building, object or structure in its present setting to another setting.

42. "Resource" means a source or collection of buildings, objects, sites, structures or areas that exemplify the cultural, social, economic, political, archaeological or architectural history of the nation, state or city.

43. "Restoration" means the act or process of accurately recovering the form and details of a

building, object, site or structure and its setting as it appeared at a particular period of time by means of the removal of later work or by the repair or replacement of missing earlier work.

44. "Significant historic landmark" means:

a. Those buildings, objects, sites, site improvements, appurtenances or structures of the highest and most unique historical, cultural, architectural or archaeological importance whose demolition or destruction would constitute an irreplaceable loss to the quality and character of El Paso;

b. Inventoried interior spaces designed or intended to be occupied as part of the structure and which are accessible to the public; and

c. Significant historic landmarks are also referred to as landmarks in this chapter.

45. "Site" means the location of a significant event, a prehistoric or historic occupation or activity, or a building, structure or cluster, whether standing, ruined or vanished, where the location itself maintains historical or archaeological value regardless of the value of any existing structure.

46. "Stabilization" means the act or process of applying measures designed to reestablish a weather-resistant enclosure or the structural stability of an unsafe or deteriorated building, object, site or structure while maintaining the essential form as it exists at present.

47. "Substantial conformity" means the revisions to approved applications that do not significantly alter the historic character or alter additional physical elements of the structure as approved in the original application.

48. "Thematic group" means a finite group of resources related to one another in a clearly distinguishable way, by association with a single historic person, event or developmental force, as one building type, design or use, as designed by a single architect, as a single archaeological site form, or as a particular set of archaeological research.

49. "Unreasonable economic hardship" means an economic burden imposed upon the owner which is unduly excessive and prevents a realization of a reasonable rate of return upon the value of his property.

50. "Vista" means a view through or along a right-of-way opening, including those along the river's banks, which, as a view corridor, frames, highlights or accentuates a prominent building, object, site, structure, scene or panorama, or patterns or rhythms of buildings, objects, site or structures; to include views of areas at a distance, such as a remote view of the downtown or the mountains.

51. "Zone" means a designated area, within an historic district, which is unique in character, tone, theme, architecture, and/or culture. A district may be divided into zones, to assist property owners and the HLC in structuring design guidelines and further evaluating applications for certificates of appropriateness. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17442, § 50, 10-26-2010)

20.20.030 Administration of the historic preservation program.

The historic preservation program will be administered under the direction of the city manager's office including appropriate staffing and administrative support of the program subject to budget appropriations approved and authorized by the city council. (Ord. 16653 § 2 (part), 2007)

20.20.040 Procedure for designation of historic landmarks and districts.

A. The city council may designate buildings, structures, sites, districts, areas and lands in the city as historic landmarks and define, amend and delineate the boundaries thereof. Requests for designation may be made by the city council, HLC or by the public on a form or zoning application obtained from the city. Completed request forms shall be returned to the city for processing. All designations must meet all requirements under Section 211.0165 of the Texas Local Government Code, as amended from time to time, or subsequent Texas statute replacing Section 211.0165 of the Texas Local Government Code.

B. The HLC shall review and forward any recommendations to the city plan commission

within forty-five days, to be forwarded to the city council for final action. In the event the HLC does not recommend an applicant's request for designation of a resource the applicant may petition the city plan commission for a hearing, following procedures set forth in Chapter 2.08 of this Code.

C. The HLC shall hold a public hearing on all proposed ordinances relating to historic properties. Notice shall be given as required by Section 211.007, Texas Local Government Code.

D. The designation of an historic landmark or historic district may be amended or removed using the same procedure provided in this section for the original designation.

E. The suffix "H" shall appear after the zoning designation of those buildings, structures, sites, districts, areas and lands which the city council designates as historical landmarks, and shall be reflected on the zoning map. Such designation shall be in addition to any other designation established under this title. Use of classifications as to all property which may be included by a historic landmark designation shall continue to be governed by the comprehensive zoning ordinance of the city and the procedures established therein.

F. Council may use the following designations for individual buildings, objects, sites or property and which are in an historic district or designated with an "H" overlay:

1. Significant historic landmark;

2. Contributing property; and

3. Noncontributing property as those terms are defined in Section 20.20.020.

G. Upon passage of an historic landmark designation ordinance, the city clerk shall file a copy of the ordinance with the city and county tax assessors and in the official records of real property of El Paso County together with a notice verifying H-overlay designation of the subject property. The city clerk shall also send a copy of such notice to the owner or owners of the subject property. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 18975, § 1, 9-3-2019)

20.20.050 Historic landmarks designation criteria.

In making designations set forth in this chapter, the HLC, the city plan commission, and city council shall consider, but shall not be limited to, one or more of the following criteria:

A. Character, interest or value as part of the development, heritage or cultural characteristics of the city, state or the United States;

B. Recognition as a Recorded Texas Historic Landmark, a National Historic Landmark, or entry into the National Register of Historic Places;

C. Embodiment of distinguished characteristics of an architectural type or specimen;

D. Identification as the work of an architect or master builder whose individual work has influenced the development of the city;

E. Embodiment of distinguished elements of architectural design, detail, materials or craftsmanship which represent a significant architectural innovation;

F. Relationship to other distinctive buildings, sites or areas which are eligible for preservation according to a plan based on architectural, historic or cultural motif;

G. Portrayal of the environment of a group of people in an area of history characterized by a distinctive architectural style;

H. Archaeological value, in that it has produced or can be expected to produce data affecting theories of historic or prehistoric interest;

I. Exemplification of the cultural, economic, social, ethnic or historical heritage of the city, state or the United States;

J. Location as the site of a significant historic event;

K. Identification with a person or persons who significantly contributed to the culture and development of the city, region, state or the United States. (Ord. 16653 § 2 (part), 2007)

20.20.060 Acquisition of historic landmarks.

The following options shall be available to the HLC, for recommendation to the city council of El Paso, for acquisition of historic landmarks:

A. If the HLC finds that buildings, structures, sites, districts, land or areas cannot be pre-

served without acquisition, the HLC shall recommend to city council that the fee simple or lesser property interest of the historic landmark in question be acquired by gift, devise, purchase, eminent domain, or otherwise pursuant to the city charter and state and federal law;

B. The HLC may recommend to city council, within ten days of the hearing before the HLC, or at the council's next regular meeting, that the historic landmark or site be acquired. Council will have thirty days to state an affirmative intent to negotiate with the property owner and, if successful, the council shall complete such a purchase within a reasonable time thereafter;

C. Formulate a program for private and public action which will state the role of various city departments in acquisition of historic landmarks or sites;

D. Suggest sources of funds for preservation and restoration activities and acquisitions, to include federal sources, state sources private and foundation sources, as well as municipal sources;

E. Recommend, to the proper agencies, incentives designed to encourage historical preservation. (Ord. 16653 § 2 (part), 2007)

20.20.070 Historic landmark recognition.

A. When approved by city council resolution, the HLC may honor property owners with an Historic Building Plaque Award. The award will be based on the following:

1. Nominations will be open to the public sector, private sector, and general public each calendar year that funding for the plaques is available. The deadline for submission of nominations will be September 1st. Nomination forms will be made available by the historic preservation officer. An HLC subcommittee may recommend not more than five structures to the HLC. Final decision, by the HLC, will be made at a regularly scheduled meeting;

2. The HLC shall award a maximum of five plaques each calendar year;

3. Criteria for awarding an Historic Building Plaque Award are as follows:

a. The building must be at least fifty years old,

b. The building must have an H-overlay, be a recorded Texas Historic Landmark, or listed on the National Register of Historic Places,

c. The building must have been rehabilitated and/or maintained in good condition, and plans prepared for the work approved by the HLC, evidenced by issuance of a certificate of appropriateness,

d. If the building was rehabilitated using state, federal, or community development block grant funding, plans must have been reviewed and approved by the state historic preservation officer (SHPO),

e. At the time of the award, the building must be in compliance with all municipal codes and ordinances,

f. Award winners may be honored at a subsequent city council meeting,

g. Recipients are required to display the award in a publicly visible location on the facade of the structure. Any replacement plaques will be acquired at the owner's expense. (Ord. 16653 § 2 (part), 2007)

20.20.080 Alterations and changes to landmarks and H-overlay properties.

A. No person or entity shall construct, reconstruct, alter, change, remove, demolish, or fail to maintain, any of the following, unless a certificate of appropriateness or a certificate of demolition has been approved by the HLC or approval granted through administrative review:

1. Any building, object, site, landscape architectural feature, or group of such designated with an H-Overlay or as a historic landmark as defined by this chapter and designated by the city council.

B. No building permit shall be issued for such proposed work until a certificate of appropriateness has first been issued by the historic landmark commission or approval granted through admin-

istrative review. The certificate of appropriateness or administrative review approval shall be in addition to and not in lieu of any building permit that may otherwise be required.

C. Certificates of appropriateness, certificates of demolition and applications for administrative review shall be granted, granted with modifications, or denied based on the following criteria:

1. When city council has adopted architectural and design guidelines for a particular district, those guidelines shall control provided they are not in conflict with other requirements of the city code, except that the HLC may approve exceptions to the guidelines in an effort to maintain the historic integrity of an H-overlay property, in which case the exception shall control in that particular case;

2. When no guidelines have been adopted for a particular district, the guidelines from the district most similar in character, design, materials, workmanship, time of construction shall apply; or as identified in the "Guide to the Identification and Preservation of El Paso's Cultural, Historic and Architectural Resources";

3. When the preceding does not provide guidelines applicable to the project, then the secretary of the interior's standards for rehabilitation and guidelines for rehabilitating historic buildings shall apply (36 CFR Part 68) (U.S. Department of the Interior, National Park Service, Preservation Assistance Division. U.S. Government Printing Office Document Number: 19940 - 160-280 QL 3, Washington, D.C., or most current revision).

4. The guidelines and use thereof by the HPO for use in granting an administratively issued certificate of appropriateness for a site located in an area of potential effect shall be as provided by the resolution of the City Council adopting such guidelines.

D. Application Content.

l. For the exterior of a designated historic landmark, a site located in an area of potential effect, or a designated historic interior, the applicant shall submit the following:

a. One copy of completed application for administrative review, certificate of appropriateness or certificate of demolition form. Applications must be typewritten, printed in ink, or electronically submitted in legible form. Completed applications shall be accepted and reviewed administratively or scheduled for HLC hearing, as applicable, on a first-come, first-serve basis. Incomplete applications shall not be processed and shall be returned to the applicant;

b. One copy of a detailed site development plan and construction documents drawn to scale, as applicable, showing the following:

i. Legal description of the property,

ii. Lots lines with dimensions of the areas,

iii. Location and arrangement of structures and fencing,

iv. Location, type, and arrangement of windows, doors, and other openings where applicable; (Include sample of each type of window or door from brochure, catalog or manufacturer),

v. Square footage of structure(s), including number of dwelling units,

vi. Required yards and setbacks,

vii. Proposed building materials (i.e., concrete, stucco, wood, metal),

viii. Sample of proposed color(s) and texture (i.e., color swatch with name, manufacturer, and number),

ix. Material and product samples from brochure, catalog or manufacturer,

x. Open spaces, where applicable,

xi. Landscaped planted areas including square footage,

xii. Architectural design of buildings, modification, addition, or new construction (floor plan(s) and elevations),

xiii. Construction details for roof, walls, floor and foundation;

c. Photographs showing current conditions of the site and/or structures;

d. One copy of a proof of ownership or other legal document demonstrating that the individual(s) or corporation submitting the application is the current property owner such as a certificate from a title company or warranty deed. An individual or entity who has a contract to purchase

property may also submit an application with the owner's written authorization. This requirement shall not apply to administrative review applications;

e. A copy of any deed restrictions, existing or proposed, on the property shall also be submitted. This requirement shall not apply to administrative review applications;

f. One eight and one-half inch by eleven inch copy of the detailed site development plan and scaled construction drawings. The copy must contain the address and legal description of the property. This requirement shall not apply to administrative review applications;

g. A plan showing restoration or rehabilitation of the interior and the exterior unless the applicant provides an inspection report that shows that the interior fully complies with all applicable code requirements and is not in need of restoration or rehabilitation, in which case the plans need only address the exterior of the site.

E. Administrative Review and Approval.

1. The historic preservation officer shall review and approve, approve with modifications or deny all administrative review applications in accordance with the administrative review design guidelines, for the following types of requests:

a. Landscape materials including vegetation, irrigation, and xeriscaping, in the front, rear, side yards and parkways; to include the following:

i. Open spaces, where applicable, including square footage,

ii. Landscaped planted areas, where applicable, including square footage,

iii. Type of landscape or surface material to be replaced; to include a sample of the proposed surface material;

b. New fencing on the front, rear and side yards; to include the following:

i. Location and type of proposed fencing,

ii. Type of proposed fencing including material and color,

iii. Chain-link fence is not an acceptable material for approval under administrative review;

c. Wrought iron security coverings for windows and doors; to include photographs and showing the following:

i. Location of proposed security grills,

ii. Type of proposed security grill including material and color;

d. Exterior accessibility ramps when placed in non-character-defining facades; to include the following:

i. Location of proposed accessibility ramp,

ii. List of materials and colors;

e. Skylights and air-conditioner units when placed in non-character-defining facades or visible from the front facade; to include the following:

i. Location of proposed skylight or air-conditioner unit,

ii. List of materials and colors,

iii. Sample of skylight or air-conditioner unit. (Include sample from brochure, catalog or manufacturer);

f. Off-premises and on-premises commercial and residential signs within historic districts in accordance with Chapter 20.18 as applicable; to include the following:

i. Location of proposed signage,

ii. List of materials and colors,

iii. Sketch of signage including total square footage;

g. Replacement of garage or household exterior doors that match the original doors; to include sample of door from brochure, catalog or manufacturer;

h. Walkways, driveways, and aprons; include location and materials;

i. Swimming pools and tennis courts where permitted by sufficient area in the side and rear yard;

j. Routine maintenance, including but not be limited to: painting, re-roofing, repair of walks, driveways, fences;

k. Placement of fire escapes when placed in non-character-defining facades and where allowed by other city ordinances;

l. Installation of windows similar to the original in appearance and purpose, regardless of construction materials include sample of window from brochure, catalog or manufacturer;

m. Installation of an accessory structure when placed in non-character-defining facades, not in the front or side yards, and when no other accessory buildings exist on the site. Accessory structure shall not exceed one hundred twenty square feet in size. Colors shall complement the existing historic structure;

n. Installation of outdoor playground equipment when placed in non-character-defining facades and not in the front or side yards;

o. Painting of previously painted surfaces other than brick or any type of stone with colors compatible with the historic district;

p. Installation of outdoor lighting fixtures and security fixtures when such elements complement the design context of the structure;

q. Minor alterations in a non-character-defining facade and not visible from the street. Any alteration found to have a detrimental impact on the historic character of the structure or historic district shall be subject to the requirements for approval for a certificate of appropriateness as outlined in Section 20.20.130(C).

3. Photographs showing current conditions of the property may be required to be furnished by the applicant for all administrative review requests.

4. The applicant may appeal decisions of the HPO to the HLC, through the application process.

F. Certificate of Appropriateness and Certificate of Demolition. Any and all changes or alterations to landmarks and H-overlay properties, as described in Section 20.20.140(A), that are not eligible for administrative review shall require an application for certificate of appropriateness or certificate of demolition to be reviewed and approved by the HLC.

G. Historic Landmark Commission Review.

1. The historic landmark commission, upon ten days' written notice to the applicant, shall hold a hearing on the application. Upon review, if the HLC finds the proposed work of a nature which will not adversely affect any significant architectural or historical feature of a designated historic landmark, and is appropriate and consistent with the spirit and purposes of this section, it shall forward a certificate of appropriateness to the applicant within ten days after the public hearing.

2. If the historic landmark commission finds that the proposed work will adversely affect or destroy any significant architectural or historical feature of the designated historic landmark or historic interior, or is inappropriate or inconsistent with the spirit and purposes of this section, it shall render a denial of the request and forward the disapproved application to the applicant within ten days after the public hearing. The HLC shall state the reason(s) for its disapproval.

3. If no action has been taken by the historic landmark commission within forty-five days of the receipt of a completed application, the application shall be approved as submitted, and a certificate of appropriateness shall be issued by the HLC. However, a certificate of demolition shall never be issued before the expiration of sixty days of receipt of a completed application.

4. No change shall be made in the application, issuance, or execution of any building permit after the issuance of a certificate of appropriateness, without submittal of a request for minor modification as provided for in Section 20.20.150, otherwise, a new application to the historic landmark commission and approval thereof in the same manner as previously provided shall be submitted.

5. After a decision is reached by the historic landmark commission denying an application for certificate of appropriateness, no application for a certificate of appropriateness for a given property may be resubmitted within twelve months from date of action by the HLC unless the HLC finds that a substantial change in conditions has occurred, or that applicant has resubmitted in conformance with subsection 3.

6. Applicants aggrieved by a decision of the historic landmark commission may appeal to city council, using the procedure identified in Section 20.20.190.

H. Area of Potential Effect. A certificate of appropriateness may also be issued administratively by the HPO using the same criteria and standards as the HLC under subsection G of this section, or administrative approval may be granted under this chapter for the construction, reconstruction, alteration or changes proposed to be made to a site located in an area of potential effect as designated by the city council, upon the request of a person or entity intending to make application for the ad valorem tax incentive program provided in Section 3.04.035 of this Code. In making a decision to administratively issue a certificate of appropriateness under this section, the HPO shall perform every duty and undertake every obligation imposed on the HLC in this section for the situations when the HLC is authorized to issue a certificate of appropriateness. (Ord. 16879 (part), 2008; Ord. 16653 § 2(part), 2007)
(Ord. No. 17233, §§ 1, 2, 11-3-2009; Ord. No. 019568, § 1, 11-21-2023)

20.20.090 Modification of certificate of appropriateness.

A. If an applicant desires to make minor modifications to the certificate of appropriateness when they prepare final working drawings, they may apply to the historic preservation officer for a minor modification of the approved certificate of appropriateness.

B. If the historic preservation officer finds the minor modifications are in substantial conformity with the approved certificate of appropriateness, the historic preservation officer shall approve the minor modifications and amend the certificate of appropriateness.

C. Changes other than such minor modification shall require a new hearing and new approval in the same manner as for review of the original certificate of appropriateness. (Ord. 16653 § 2 (part), 2007)

20.20.100 Economic hardship application procedure.

A. After receiving written notification from the HLC of the denial of any application, an applicant may commence the economic hardship application process discussed herein at no additional cost. No building permit or demolition permit shall be issued through this procedure unless the HLC makes a finding that, through no fault of his own, the owner cannot otherwise realize a reasonable rate of return on, or sell his property at a reasonable price to an individual or entity interested in preserving it.

B. The applicant and the HLC shall consult in good faith in a diligent effort to seek an alternative that will result in preservation of the property.

C. The HLC shall hold a public hearing on the application within thirty days from the date the complete application is received by the HLC.

D. If the HLC approves the application it shall forward a certificate of appropriateness to the applicant within ten days after the public hearing. However, a certificate of demolition shall not be provided to the applicant until at least sixty days following the date of submittal of a completed application.

E. If the HLC denies the application, it shall forward the disapproved application to the applicant within ten days after the public hearing. The HLC shall state the reasons for its disapproval.

F. If no action has been taken by the HLC within sixty days of the original receipt of the economic hardship application by the HLC, a certificate of appropriateness or certificate of demolition shall be deemed to have been issued by the HLC, and the historic preservation officer shall so advise the applicant.

G. No change shall be made in the application for any building permit after the issuance of a certificate of appropriateness without submittal of a new application to the HLC and approval thereof as previously provided.

H. After a decision is reached by the HLC denying an application, a re-submittal of application shall not be accepted for additional hearing within a twelve-month period from the date of the final decision, unless the HLC determines, after

reviewing a written request of the applicant, that there has been a change in conditions sufficient to warrant an earlier rehearing.

I. Applicants aggrieved by a decision of the HLC may appeal to city council, using the procedure identified in Section 20.20.190. (Ord. 16653 § 2 (part), 2007)

20.20.110 Enforcement.

A. All work performed pursuant to a certificate of appropriateness or administrative review shall conform to any requirements included therein. It shall be the duty of the historic preservation officer to inspect any such work to assure compliance. In the event work is found that is not in accordance with the certificate of appropriateness or administrative review, the historic preservation officer shall notify the building official, who may issue a stop work order, a citation, or pursue other prosecution in accordance with this Code or any other applicable statute or law. All further work by the applicant shall be subject to the requirements of the city code or other governing statute or law.

B. If a certificate of appropriateness is issued, a project is completed, and if the property qualifies for a tax abatement per Title 3 of this Code, then the historic preservation officer shall inspect the premises on an annual basis to ensure compliance with the certificate of appropriateness for the duration of the tax abatement. If the historic preservation officer determines that conditions have changed to make the project noncompliant with the certificate of appropriateness, they shall notify the owner in writing and submit a report to the HLC providing details of the alleged noncompliance.

C. The HLC shall hold a hearing and notify the property of the date, time and place of the hearing so that the property owner may attend and present evidence of compliance with the certificate of appropriateness. The HLC shall make a finding, based upon the evidence presented by the historic preservation officer and the property owner, whether or not the project is or is not in compliance with the original certificate of appropriateness. If the HLC finds that the project is not in compliance, the historic preservation officer shall notify the taxing authority, and the tax abatement for the project shall cease immediately. The property owner may present an alternate plan in order to comply with the certificate of appropriateness, and the HLC may amend and approve the modifications. The property owner may appeal the HLC's decision to the city council as provided for herein. (Ord. 16653 § 2 (part), 2007)

20.20.120 Historic landmark demolition or removal.

A. An application for demolition or removal of any portion of a designated historic landmark or H-overlay property shall be filed with the historic preservation officer who shall forward it to the HLC within five days of receipt. The HLC shall then hold a public hearing on the application after at least ten days written notice to the applicant. The HLC shall consider the historic value, state of repair, reasonableness of the cost of restoration or repair, the existing and potential usefulness, including economic usefulness of the building, purposes behind preserving the structure as a historic landmark, neighborhood character, and all other factors it finds appropriate. The HLC shall delay the proposed demolition for a period of at least sixty days from the date of submission of a completed application. After such time period, the HLC may approve or deny the application in whole or in part, or suspend action on it for a period not to exceed six months.

B. If the HLC determines, based on the evidence presented, that the cost of restoration or repair would render the property incapable of earning a reasonable return, the HLC may recommend to city council, within ten days of the hearing before the HLC, or at the council's next regular meeting, that the property be acquired pursuant to Section 20.20.120(A). Council will have thirty days to state an affirmative intent to negotiate with the property owner and to act on such a purchase within a reasonable time thereafter. If council does not act affirmatively, or the HLC

determines that the interest of preserving historical values will not be adversely affected by such demolition or removal or that the interest of preserving historical values can best be served by the removal of the structure to another specified location, it shall issue a certificate of demolition or a certificate of removal to the applicant within ten days therefrom, or sixty days of receipt of a completed application, whichever comes later.

C. If no action has been taken by the HLC within ninety days of original receipt by the HLC of the application, it shall be deemed approved as submitted and a certificate of demolition or a certificate of removal shall be issued by the HLC and the HPO shall so advise the applicant.

D. After a decision is reached by the HLC denying an application for a certificate of demolition or a certificate of removal, a re-submittal of an application for such certificate will not be accepted for a twelve-month period from the date of final decision, except upon written request of the applicant indicating that there has been a change in conditions sufficient to warrant an earlier rehearing.

E. Subsections A through D of this section shall not apply whenever the building official or the fire chief or their designee proceeds under Chapter 18.50. In such case, the building and standards commission after the appropriate notice and hearing, may order the building or structure or part thereof secured, repaired, removed or demolished without regard to the "H" designation on the building or structure or part thereof; but in no event may the building and standards commission take such action unless it determines that the building or structure or part thereof is unsafe and dangerous so as to endanger persons or property or is a fire hazard, and that such danger or hazard is so great and so immediate that subsections A through D of this section should be circumvented to prevent immediate and substantial harm to persons or property. Such a determination by the building and standards commission shall be final except as provided for by state law.

F. Prior to submitting an application for demolition or removal, the applicant shall send written notice of the proposed application via certified mail, facsimile transmission or personal delivery to the mayor and city council, the county historical commission, and if the property is located within a recognized neighborhood association ("RNA") boundary, the applicant shall provide written notice to any such RNA. Such notice shall contain the following information:

1. A detailed description of what is being applied for;

2. A method by which the applicant can be contacted; and

3. A statement as to the application's projected impact on the land comprising the geographic boundary of the RNA.

As part of the submitted application, the applicant shall provide a copy of the written notice sent to each individual or entity and proof of delivery. Failure to provide written notice, or an affidavit attesting hand delivery shall result in the application not being accepted as complete. (Ord. 16830 §§ 1, 2, 2008; Ord. 16653 § 2 (part), 2007) (Ord. No. 17442, § 51, 10-26-2010)

20.20.130 Prevention of demolition by neglect.

A. Applicability. All historic landmarks and properties with an "H" overlay shall be preserved against detrimental deterioration and kept free from certain structural defects by the owner or legal custodian who shall repair such building, object, site, or structure if it is found to have any of the following defects:

1. Deterioration of roofs or other horizontal members;

2. Deterioration of chimneys;

3. Deterioration or crumbling of stucco or mortar;

4. Ineffective waterproofing of exterior walls, roof or foundations, including broken windows or doors; or

5. Deterioration of any feature so as to create a hazardous condition which could lead to the claim that demolition is necessary for the public safety.

B. Upon the HLC's receipt of a claim of detrimental deterioration of a landmark, it shall notify the owner in writing, informing the owner of the complaint and specifics of the alleged detrimental deterioration, requesting that the owner appear before the HLC for a fuller and more accurate determination of the existence of detrimental deterioration.

C. If the HLC determines after public hearing that there is detrimental deterioration as described in subsection A, the owner or legal custodian shall be given a reasonable time and opportunity to cure. The owner or legal custodian must comply with all requirements of requesting a certificate of appropriateness from the HLC. (Ord. 16653 § 2 (part), 2007)

20.20.140 Penalty for demolition or alteration without a permit.

A. It is unlawful to construct, reconstruct, structurally alter, remodel, renovate, restore, demolish or raze any historic landmark in violation of this chapter. The city, in addition to other remedies, may institute any appropriate action or proceedings to prevent such unlawful violation and to restrain, correct or abate such violation, to prevent any illegal act, business or maintenance in and about such premises.

B. In addition to any remedies allowed pursuant to Chapter 20.24 or other law and exercised under subsection A, a person, corporation or entity is liable to the city if the person demolishes, or causes to be demolished, or otherwise adversely affects the structural, physical or visual integrity of an historic landmark without first obtaining a permit from the building services department and a certificate of demolition from the HLC as required by this chapter. The structure or property must have a designated "H" overlay, individually or as part of an historic district.

C. If the structural, physical or visual integrity of the historic landmark is adversely affected to the extent that it may not feasibly be substantially restored to its original level of historic significance, damages are equal to the cost of constructing, using as many of the original materials as possible, a new structure that is a reasonable facsimile of the historic landmark as well as the cost of attorney's, architect's and appraiser's fees and other costs related to the enforcement of this section. If it is feasible to restore the structural, physical or visual integrity of the historic landmark substantially to its former level, the damages are equal to the cost of the restoration, using as many of the original materials as possible and the cost of attorney's, architect's and appraiser's fees and other costs related to the enforcement of this section.

D. Instead of accepting monetary damages, the city council may permit the liable person to construct, within a reasonable time and using as many of the original materials as possible, a structure or property that is a reasonable facsimile of the demolished historic landmark or to restore, using as many of the original materials as possible, the historic landmark and to pay the cost of attorney's, architect's and appraiser's fees and other costs related to the enforcement of this section. (Ord. 16653 § 2 (part), 2007)

20.20.150 Ad valorem tax incentives for historic properties.

A. The city will provide applications for the ad valorem tax incentives program provided in Section 3.04.035 of this Code to promote preservation and restoration of historic properties.

B. The city council may identify by resolution one or more areas of the city that abut historic landmarks and districts and include one or more historically significant sites in need of tax relief to encourage their historic preservation, and shall designate and declare those areas as areas of potential effect. Those sites meeting the criteria set forth in Section 3.04.035 of this Code and located in designated areas of potential effect shall be eligible to make application for and receive the tax incentives described in this section and as provided in Section 3.04.035 of this Code. (Ord. 16879 (part), 2008)

20.20.160 Notice.

Any notice required to be given under this chapter shall be by deposit in the U.S. Postal Service, postage prepaid, to the addressee at his last known mailing address. (Ord. 16653 § 2 (part), 2007)

20.20.170 Severability.

The terms and provisions of this chapter are severable and shall be governed by Section 1.04.060. (Ord. 16653 § 2 (part), 2007)

20.20.180 Zoning board of adjustment.

This chapter is not to be construed as conferring any jurisdiction on the zoning board of adjustment in matters pertaining to historic landmark preservation. (Ord. 16653 § 2 (part), 2007)

20.20.190 Appeal to the city council.

Any applicant or the owner of any property located within three hundred feet of any landmark, or the owner of any property within the same historic district as the subject of the appeal, who is aggrieved by a ruling of the HLC concerning that landmark under the provisions of this section, may within fifteen days after the ruling of the HLC, appeal to the city council by filing written notice of such appeal with the city clerk. Following a public hearing to be held within sixty days of the filing of such notice of appeal, the city council may, by a simple majority vote, uphold or overturn any ruling of the HLC made pursuant to this chapter. (Ord. 16653 § 2 (part), 2007)

Chapter 20.22

NONCONFORMING SITUATIONS

Sections:

20.22.010 Policy.

20.22.020 Nonconforming lots.

20.22.030 Nonconforming uses.

20.22.040 Nonconforming structures.

20.22.050 Nonconforming dwellings in commercial and manufacturing districts.

20.22.060 Newly annexed areas.

20.22.070 Registration required.

20.22.080 Property affected by right-of-way acquisition.

20.22.090 Nonconforming signs.

20.22.100 Nonconforming PWSF.

20.22.010 Policy.

Nonconforming situations may continue, so long as the conditions within this chapter and all other applicable sections of the code are met; however, the city encourages the eventual replacement of nonconforming uses which are potentially undesirable and incompatible with surrounding conforming uses and require compliance with the regulations of this Code, having due regard for the property rights of the persons affected, the public welfare, compatibility, and the character of the surrounding area. This chapter does not require the removal of or destruction of property in existence at the time when any zoning regulation first became effective and is actually and necessarily used in a public service business. (Ord. 16653 § 2 (part), 2007)

20.22.020 Nonconforming lots.

A single-family dwelling may be erected on a lot recorded in the real property records, even though of less width, depth, or area than required by the regulations for the district in which it is located, if such lot was separately owned at the time when any zoning restrictions as to its required width or area (whether under this title or any other ordinance or amendment) first became effective, if the owner of such lot does not own any other lot, parcel or tract immediately adjacent thereto, and so long as the lot is registered and verified by the zoning administrator as a nonconforming lot. (Ord. 16653 § 2 (part), 2007)

20.22.030 Nonconforming uses.

A. Any use of a building, structure, or property or if a valid building permit has been issued for the use of the structure in that district, legally in existence at the time when any zoning restrictions as to use, area, yards, setbacks, or off-street parking (whether under this or any other ordinance or amendment) first became effective as to such use, and which does not conform to the regulations described in this title may continue the use so long as the use is registered in accordance with the provisions of Section 20.22.070 and verified by the zoning administrator as legal nonconforming and is subject to the following limitations:

1. A nonconforming use of a structure may not be enlarged or increased, except a nonconforming use may be extended to any portion of a building which portion was arranged or designed for such nonconforming use on or prior to the date on which the use became nonconforming, or if required by law to meet minimum health and safety requirements required by a governmental entity. Written documentation establishing the date of the original design or arrangement of use, or requirement by a governmental entity shall be required at the time of submittal for a building permit, and the mere intent of the owner or occupant shall not satisfy this requirement; and,

2. A nonconforming use shall not be changed unless changed to a conforming use. A nonconforming use if changed to a conforming use may not thereafter be changed back to any nonconforming use. A nonconforming use may not be changed to any other nonconforming use.

B. Abandonment and Termination of a Nonconforming Use.

1. A nonconforming use is deemed abandoned and the right to operate a nonconforming use shall terminate immediately if any of the following occur:

a. The use of property is changed from a nonconforming use to a conforming use, or to another nonconforming use;

b. The non-use or non-operation of the nonconforming use, or the vacancy of a portion or all of the structure used for the nonconforming use of the property for a continuous period of one hundred twenty days or more;

c. A portion or all of the structure used for the nonconforming use is damaged or destroyed by the intentional act of the owner or his agent;

d. Discontinuance or abandonment shall be conclusively deemed to have occurred irrespective of the intent of the property owner if any portion of the structure in which the nonconforming use is located is dilapidated, substandard, or is not maintained in a suitable condition for occupancy during a continuous period of one hundred twenty days.

2. A seasonal discontinuance of a nonconforming use, or a temporary discontinuance of a nonconforming use for maintenance or repair, is excluded from a calculation of the one hundred twenty-day period described in subsection (B)(1)(b) of this section.

3. A person may not resume an abandoned or otherwise terminated nonconforming use.

4. Destruction of Nonconforming Use. The right to operate and maintain any nonconforming use, except a single-family dwelling unit is not subject to this subsection and may reconstruct up to one hundred percent of the prior existing building footprint, shall terminate and shall cease to exist whenever the structure or any portion of the structure in which the nonconforming use is operated and maintained is damaged or destroyed by fire, the elements or other than the intentional acts of the owner or operator, if the destruction amounts to fifty percent or more of its fair market value as determined by the tax appraisal roll, not including the value of the land, on the date of such damage or destruction. If the owner of a nonconforming use fails to begin reconstruction of the destroyed building, when permitted to do so by the terms of this section within one hundred twenty days of the date of destruction, the nonconforming use shall be deemed to be discontinued or abandoned, and shall no longer be authorized to continue.

C. No nonconforming accessory use shall continue after the principal use or structure shall have ceased or terminated unless the accessory use shall thereafter conform to the provisions of the zoning district in which it is located. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17777, § 1, 5-1-2012)

20.22.040 Nonconforming structures.

A. Any nonconforming structure legally in existence at the time when any zoning restrictions as to use, area, yards, setbacks, or off-street parking (whether under this or any other ordinance or amendment) first became effective as to such use, and which does not conform to the regulations described in this title may continue in use and operation so long as the structure is registered in accordance with the provisions of Section 20.22.070 with the zoning administrator as legal nonconforming and is subject to the following limitations.

1. Unless otherwise provided, a nonconforming building or structure shall not be added to or enlarged in any manner unless the addition or extension meets the requirements of the district in which it is located.

2. If a nonconforming structure is nonconforming as to off-street parking requirements, a change of occupancy to another use permitted in the zoning district is allowed provided that the parking requirements are the same as the original nonconforming use. If a change of occupancy to a use that requires additional parking is requested, the additional off-street parking required for the new use must be provided.

B. Abandonment and Termination of a Nonconforming Structure.

1. A nonconforming structure is deemed abandoned and the right to operate a nonconforming building shall terminate immediately if any of the following occur:

a. The non-use or non-operation of a use, or the vacancy of a portion or all of the structure for a continuous period of one hundred twenty days or more;

b. A portion or all of the structure used for the nonconforming use is damaged or destroyed by the intentional act of the owner or his agent;

c. Discontinuance or abandonment shall be conclusively deemed to have occurred irrespective of the intent of the property owner if the nonconforming building is dilapidated, substandard, or is not maintained in a suitable condition for occupancy during a continuous period of one hundred twenty days.

2. A seasonal discontinuance of a nonconforming building, or a temporary discontinuance of a nonconforming building for maintenance or repair, is excluded from a calculation of the one hundred twenty-day period described in subsection (B)(1)(b) of this section.

3. A person may not resume an abandoned or otherwise terminated nonconforming use.

4. Destruction of Nonconforming Structure. The right to operate and maintain any nonconforming structure, except a single-family dwelling unit is not subject to this subsection and may reconstruct up to one hundred percent of the prior existing building footprint, shall terminate and shall cease to exist whenever the structure or any portion of the structure is damaged or destroyed from any cause whatsoever, except if caused by the intentional act of the owner or operator, if the destruction amounts to fifty percent or more of its fair market value as determined by the tax appraisal rolls, not including the value of the land, on the date of such damage or destruction. If the owner of a nonconforming use fails to begin reconstruction of the destroyed building, when permitted to do so by the terms of this section within one hundred twenty days of the date of destruction, the nonconforming building shall be deemed to be discontinued or abandoned, and shall no longer be authorized to continue.

C. Normal repairs and maintenance may be made to a nonconforming building or structure; provided that no structural alterations shall be made except those required by law or ordinance due to health or safety concerns and as required by a governmental entity.

D. A nonconforming building or structure shall not be moved in whole or in part from the property or within the lot in which it is located, unless every portion of such building or structure is made to conform to all regulations of the district in which it is located.

E. No nonconforming accessory structure shall continue after the principal use or structure shall have been damaged or destroyed unless the accessory structure shall thereafter conform to the provisions of the zoning district in which it is located.

F. A cemetery, sewage disposal or treatment plant, hospital, sanatorium, correctional institution, or municipal or state building or institution existing in any district on November 23, 1955, or any M-1 district use so existing in a C-4 or C-5 district, shall be deemed a conforming use upon the plot devoted to such use on the effective date of Ordinance No. 1448, adopted on November 23, 1955. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17777, § 2, 5-1-2012)

20.22.050 Nonconforming dwellings in commercial and manufacturing districts.

A dwelling nonconforming as to use in a commercial or manufacturing district shall be permitted; provided, that the yard standards and the off-street parking requirements at the time the structure became nonconforming as to use are maintained. (Ord. 16653 § 2 (part), 2007)

20.22.060 Newly annexed areas.

A. Nonconforming rights may be granted to uses or structures located within newly annexed

areas in accordance with the following provisions. An application for registration and certificate of occupancy for the nonconforming use or structure must be filed with the building official.

B. Incomplete Construction. Construction may be completed on any structure legally under construction upon annexation provided:

1. The owner or his designated representative applies to the city for a building permit to authorize further work on the structure stating the proposed use of the structure and attaching thereto the plans and specifications relating to the construction; and

2. The construction is completed within one hundred twenty days of the effective date of the issuance of the building permit unless an extension is granted. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17442, § 52, 10-26-2010)

20.22.070 Registration required.

A. Nonconforming uses and structures shall be registered with the zoning administrator by providing the following information:

1. File an application with the city and pay a nonrefundable fee established by the city council stating that such building or land occupied by the nonconforming building or use was, to the best of the owner or occupant's knowledge, in lawful use and lawfully existing as of the date of adoption of the applicable code in effect at the time that the building or use became nonconforming.

2. Provide supporting documentation that may include, but is not limited to, building permits or certificates of occupancy that show or describe the nonconforming condition, aerial photography, central appraisal district records, affidavits of surrounding property owners or residents who are knowledgeable of the existence and use of the building or property, or any other information deemed necessary to determine the nonconforming status of the building or use by the zoning administrator.

a. Registration of a nonconforming structure. The preferred documentation is an aerial photo or building permit that shows the nonconformity, and is dated prior to annexation of the property or adoption of the code regulation that rendered the structure nonconforming. If such a permit or photo is submitted it shall be sufficient to register the nonconforming structure. If the nonconforming structure is not shown in the permit or aerial photo, two supporting documents shall be required.

b. Registration of a nonconforming use. Two supporting documents shall be required.

B. Upon proper application and review and verification of the documents submitted establishing that the nonconforming building or use was legally in existence at the time when any zoning restrictions as to use, area, yards, setbacks, or off-street parking (whether under this or any other ordinance or amendment) first became effective as to such use, the city may register the building or use as legal nonconforming and maintain a record of all registrations. (Ord. 16653 § 2 (part), 2007)
(Ord. No. 17442, § 53, 10-26-2010; Ord. No. 17777, § 3, 5-1-2012)

20.22.080 Property affected by right-of-way acquisition.

A. Definitions.

1. "Governmental agency." United States of America, State of Texas, County of El Paso, City of El Paso, or any other agency having jurisdiction within the City of El Paso limits, with the ability to exercise eminent domain powers.

2. "Right-of-way acquisition." The securing of right-of-way through negotiation, purchase, bargain, trade, donation, condemnation or other means, but not including the dedication of right-of-way through the platting or zoning processes.

B. In the event that a right-of-way acquisition by a governmental agency causes a property or the improvements thereon to be in violation of Appendix B (Table of density and dimensional standards) and Appendix C (Table of parking requirements and standards) of Title 20 (Zoning) and/or Chapter 18.46 (Landscape), said property shall be exempt from said provisions to the extent said

violation is caused by the right-of-way acquisition and shall be eligible for registration as a legal nonconformity, subject to the following:

1. Property which undergoes a zoning change initiated by the property owner subsequent to right-of-way acquisition shall no longer be subject to this exemption and shall instead have a nonconforming status to the extent that any nonconformance with city ordinances resulted from a right-of-way acquisition by a governmental agency prior to the rezoning and shall therefore be treated as a nonconforming use pursuant to the provisions of this chapter rather than exempt as provided above. However, a city-initiated rezoning shall not cause a property to lose the exemption provided by this section for properties affected by right-of-way acquisitions.

2. Nothing provided in this provision shall be construed to permit any obstruction which may create a traffic safety hazard or any other safety hazard.

3. Improvements required by special permit or zoning condition and located in the area acquired for right-of-way shall no longer apply subsequent to the acquisition, except that required screening per Chapter 20.16 (Screening and fencing) originally located within the area of the acquired property shall be relocated to the remainder of the tract as close as practicable inside the new property line.

4. Any alteration resulting in an increase in building square footage to the registered legal nonconformity shall require that the increased square footage area of the building comply with all applicable provisions in Title 20 (Zoning) and Chapter 18.46 (Landscape).

C. In the event that a right-of-way acquisition by a governmental agency causes an on-premises sign to be in violation of Chapter 20.18, Article IV (On-premises sign regulations), said sign shall be exempt from said provisions to the extent said violation is caused by the right-of-way acquisition, subject to the following:

1. The sign must have been legally permitted at the time of the initial placement; and

2. Must be relocated to the remainder or remain in its existing location; and

3. Cannot be altered or enlarged; and

4. Must be registered as legal nonconforming and be subject to the provisions of Section 20.22.090 (Nonconforming signs).

D. The provisions of Section 20.22.040 B. are not applicable to properties that register legal nonconforming under these provisions.

(Ord. No. 18771, § 1, 3-20-2018)

Editor's note—Ord. No. 18771, § 1, adopted March 20, 2018, repealed the former § 20.22.080 and enacted a new § 20.22.080 as set out herein. The former § 20.22.080 pertained to similar subject matter and derived from Ord. 16653 § 2(part), adopted in 2007.

20.22.090 Nonconforming signs.

A. Signs Which Are Nonconforming. Signs which were lawfully erected prior to the adoption of the ordinance herein codified which do not conform to this ordinance, as well as signs existing at the time the area wherein the sign is located is annexed, are deemed to be nonconforming, and may continue in existence provided that no nonconforming sign shall be:

1. Changed to or replaced with another sign, unless in compliance with then current city code. Upon application to the city, the face of the sign on an existing sign that is structurally safe and for which a valid permit or nonconforming registration is on file may be changed to indicate a new owner or business provided that the change or alteration shall not result in the following:

a. A change in the method or technology used to convey the message;

b. An increase in the illumination of the sign;

c. An increase in the sign face area;

d. Structural alteration to extend its useful life;

e. Expansion in any dimension;

f. reestablishment of the sign after damage or destruction if the cost of repairing the sign is more than fifty percent of its replacement value at the time of such damage or destruction;

g. Modification or relocation in any way that would increase the degree of nonconformity of such sign;

h. Modification or additional lighting or any other enhancement.

i. Poles may be replaced, subject to a building permit, but only if not more than one-half of the total number of poles of the sign structure are replaced in any twelve-month period and the same material is used for the replacement poles.

j. Addition of a catwalk to the sign structure;

k. Addition of lighting to an unilluminated sign or addition of more intense lighting to an illuminated sign, whether or not the lights are attached to the sign structure;

l. Changing the number of poles in the sign structure;

m. Addition of permanent bracing wires, guy wires, or other reinforcing devices;

n. Changing the material used in the construction of the sign, such as replacing wooden material with metal material;

o. Addition of faces to a sign or changing the sign configurations;

p. Increase in the height of the sign;

q. Changing the configuration of the sign structure, such as changing a "V" sign to a stacked or back-to-back sign, or a single face sign to a back-to-back sign;

r. Moving the sign structure or sign face in any way;

2. This provision shall not prevent repairing or maintenance of any part of a sign structure to a safe condition or performing normal maintenance operations on a sign or sign structure. The following actions are considered maintenance and are allowed without losing the legal nonconforming status of the sign:

a. Replacement of nuts and bolts;

b. Nailing, riveting or welding;

c. Cleaning and painting;

d. Manipulation of sign structure to level or plumb it;

e. Changing the advertising message;

f. Replacement of minor parts if the material of the minor parts are the same type as those being replaced and the basic design or structure of the sign is not altered;

g. Changing all or part of the sign face with materials similar to those being replaced.

B. Registration of Nonconforming Signs. Each nonconforming sign shall be registered by the owner or owners of the sign by filing a registration form with the zoning administrator. Signs without permits which were registered properly pursuant to any prior city code provision are deemed to be nonconforming.

C. Abandonment and Termination of a Nonconforming Sign.

1. A nonconforming sign is deemed abandoned and the right to operate a nonconforming sign shall terminate immediately if any of the following occur:

a. The nonuse of the sign for a continuous period of one hundred twenty days or more;

b. A portion or all of the sign is damaged or destroyed by the intentional act of the owner or his agent.

c. Discontinuance or abandonment shall be conclusively deemed to have occurred irrespective of the intent of the property owner if the nonconforming sign is dilapidated, substandard, or is not maintained in a suitable condition during a continuous period of one hundred twenty days.

D. A nonconforming sign shall not be moved in whole or in part from the property or within the lot in which it is located, unless every portion of such building or structure is made to conform to all regulations of the district in which it is located.
(Ord. 16653 § 2 (part), 2007)
(Ord. No. 17960, § 18, 2-19-2013)

20.22.100 Nonconforming PWSF.

A. A personal wireless service facility (PWSF) that was built in compliance with the city's zoning regulations and was issued a certificate of completion, or if a certificate of completion was not issued, there was a valid building permit and an approved final inspection; and has been registered as a legal nonconforming structure, may continue in existence as a nonconforming structure. Such nonconforming structures may be modified or demolished and rebuilt on the same property as

described in the certificate of completion or building permit, provided that the modified or rebuilt PWSF complies with all of the following:

1. A modified or rebuilt PWSF must propose to have at least one additional antenna than that of the existing or pre-existing facility. If the PWSF is to be rebuilt, the ground surface area shall not exceed one hundred twenty-five percent of the existing facility, including all appurtenant equipment storage facilities;

2. The height of a modified or rebuilt PWSF and the appurtenant antennas attached thereto shall not exceed the height of the existing facility by more than ten percent or the height limitation of Section 20.10.455 (Personal wireless service facilities), whichever is greater;

3. A rebuilt PWSF may be relocated on the original property, but must have setbacks that are no more nonconforming than that of the pre-existing facility and must meet the minimum setback standards for the zoning district in which it is located;

4. A modified or rebuilt PWSF shall be painted to reduce glare and reflections. No exterior paint colors shall be used which have a light reflecting value (LRV) greater than forty percent. The LRV of a paint is available from paint manufacturers and it measures the amount of light reflected by a certain color;

5. All rebuilt ground-mounted PWSF shall be a like for like replacement with regards to camouflaging (i.e., non-camouflage for non-camouflage). Camouflaging is a method of disguising or concealing the appearance of an object by changing its usual color, modifying its shape, or locating it in a structure that complements the natural setting, existing and surrounding structures. In the context of this section, camouflaging includes, but is not limited to, making PWSF antenna support structures resemble man-made trees, locating PWSF antenna support structures in bell steeples or clock towers, or on similar alternative-design mounting structures;

6. A modified or rebuilt PWSF shall maintain the same screening and landscaping as the existing facility; provided, however, that this section shall not prevent additions or improvements to the landscaping in accordance with the landscaping ordinance;

7. A rebuilt PWSF may be constructed prior to the demolition of the existing nonconforming PWSF, so long as the rebuilt PWSF is constructed in accordance with the provisions of this section, and the existing nonconforming PWSF shall be completely demolished within thirty days from the date that the rebuilt PWSF is issued a certificate of completion. A temporary cell-on-wheels (COW) may be permitted on the property for a period not to exceed twelve months during construction of the new facility. The COW must be removed within thirty days from the date the new PWSF is issued a certificate of completion; and

8. If two or more nonconforming ground-mounted PWSF within a one-half mile radius are demolished in a coordinated effort to collocate the existing antennas onto one structure, a new PWSF may be rebuilt on any of the sites. The height of the rebuilt PWSF and the appurtenant antennas attached thereto shall not exceed the height of the tallest of the pre-existing facilities, or the height limitation of Section 20.10.455 (Personal wireless service facilities), whichever is greater. The setbacks of the rebuilt PWSF shall be no more nonconforming than the most nonconforming of the pre-existing facilities.

B. The issuance of a permit pursuant to this section allowing the modification or demolition and rebuilding of an existing nonconforming PWSF shall not be considered a determination that the modified or rebuilt PWSF is conforming.

C. Except as provided in this section or permitted by federal regulations, a nonconforming PWSF may not be enlarged, increased in size, or modified without being brought into compliance with the regulations of Section 20.10.455 (Personal wireless service facilities).

D. Abandonment and Termination of a Nonconforming PWSF.

1. A nonconforming PWSF is deemed abandoned and the right to operate a nonconforming PWSF shall terminate immediately if any of the following occur:

a. The nonuse of the PWSF for a continuous period of one hundred twenty days or more;

b. A portion or all of the PWSF is damaged or destroyed by the intentional act of the owner or his agent;

c. Discontinuance or abandonment shall be conclusively deemed to have occurred irrespective of the intent of the property owner if the nonconforming PWSF is dilapidated, substandard, or is not maintained in a suitable condition during a continuous period of one hundred twenty days.

2. The owner of a ground-mounted personal wireless service facility shall notify the city in writing within one hundred twenty days of nonuse of the PWSF that a facility is no longer needed or is not in an operable condition. After which time, the regulations of Section 20.10.455(C) shall be followed.

E. Property Affected by Right-of-Way Acquisition.

1. In the event that a right-of-way acquisition by a governmental agency causes a PWSF to be in violation of Section 20.10.455, said PWSF shall be exempt from said provision to the extent said violation is caused by the right-of-way acquisition, subject to the following:

a. The PWSF must have been legally permitted at the time of the initial placement; and

b. Must be located to the remainder of the property or remain in its existing location; and

c. Cannot be altered or enlarged; and

d. Must be registered as legal nonconforming and be subject to the provisions of Section 20.22.100 (Nonconforming PWSF). (Ord. 16653 § 2 (part), 2007)

(Ord. No. 19016, § 8, 1-7-2020)

Chapter 20.24

ENFORCEMENT—PENALTY

Sections:

20.24.010 Civil and criminal penalties.

20.24.020 Criminal prosecution.

20.24.030 Civil remedies.

20.24.010 Civil and criminal penalties.

The city shall have the power to administer and enforce the provisions of this title as may be allowed by governing law. Any person violating any provision of this title is subject to suit for injunctive relief as well as prosecution for criminal violations. Any violation of this title is declared to be a nuisance. (Ord. 16653 § 2 (part), 2007)

20.24.020 Criminal prosecution.

Any person violating any provision of this title shall be guilty of a misdemeanor and upon conviction, be fined a sum not exceeding two thousand dollars. Each day that a provision of this title is violated shall constitute a separate offense. (Ord. 16653 § 2(part), 2007)
(Ord. No. 17235, § 4, 11-10-2009)

20.24.030 Civil remedies.

Nothing in this title shall be construed as a waiver of the city's right to bring a civil action to enforce the provisions of this title and to seek remedies as allowed by law, including, but not limited to, the following:

1. Injunctive relief to prevent specific conduct that violates this title or to require specific conduct that is necessary for compliance with this title;

2. A civil penalty up to five hundred dollars a day when it is shown that the defendant was actually notified of the provisions of this title and after receiving notice committed acts in violation of this title or failed to take action necessary for compliance with this title; and

3. Any other available relief. (Ord. 16653 § 2 (part), 2007)

Appendix A

TABLE OF PERMISSIBLE USES

	Use	Residential															Commercial						Manufacturing				Special Purpose													Supplemental Standards	Accessory Uses Permitted to Specific Use
		R-1	R-2	R-2A	R-3	R-3A	R-4	R-5	RMH	A-1	A-2	A-3	A-4	A-O	A-3/O	A-M	C-OP	C-1	C-2	C-3	C-4	C-5	Q	M-1	M-2	M-3	R-F	PMD****	S-D**	U-P**	P-R I**	P-R II**	P-C**	P-I**	SRR**	R-MU**	G-MU**	I-MU**	NOS	URD		
1.00 Agricultural & related operations																																									
1.01	Animal cemetery	S	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	E	X	X	X	X	X	X	X	X	Z	Z	X		X	§ 20.10.010; § 20.10.020	
1.02	Animal crematory	S	S	S	S	S	S	S	X	X	X	X	X	X	X	S	X	X	S	S	S	X	X	X	X	X	S	X	X	X	X	X	X	X	X	Z	Z		X	§ 20.10.010	
1.03	Animal kennel	S	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	X	X	X	X	X	E	X	X	X	X	X	X	X	X	Z	Z	X		X	§ 20.10.010; § 20.10.020; § 20.10.080	
1.04	Animal pound, shelter	S	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	E	X	X	X	X	X	X	X	X	Z	Z	X		X	§ 20.10.010; § 20.10.020; § 20.10.080	
1.05	Animal training facility (school)	S	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	X	X	X	X	X	E	X	X	X	X	X	X	X	X	Z	Z	X		X	§ 20.10.010; § 20.10.020; § 20.10.080	
1.06	Barn	A	A	A	A	A	A	A	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	X	X	X	X	X	X	X	Z	X	X	X	X	§ 20.10.010 § 20.10.020	
1.07	Composting facility	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	X	P	X	X	P	X	X	X	X	X	X	X	X	X	X	X		X	§ 20.10.010 § 20.10.020	
1.08	Dude ranch	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	S	X	X	X	X	X	X	X	Z	X	X	X	X	§ 20.10.010 § 20.10.020	
1.09	Farm	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	X	D	D	D	D	D	D	D	Z	Z	Z		X	§ 20.10.010; § 20.10.020 § 20.10.220	
1.10	Farmer's market	S	S	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	P	X	X	X	X	P	X	X	P	X	X	X	X	X	X	Z	X		X	§ 20.10.010 § 20.10.020	
1.11	Feed yard	S	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	X	X	X	X	X	X	X	X	X	X		X	§ 20.10.010; § 20.10.020 § 20.10.230	
1.12	Greenhouse (industrial-scale)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	X	P	X	X	P	X	X	X	X	X	X	D	X	X	Z	Z		X	§ 20.10.010 § 20.10.020	
1.13	Harvesting (field, tree, bush crops)	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	X	D	D	D	D	D	D	D	Z	Z	Z		X	§ 20.10.010 § 20.10.020 § 20.10.220	
1.14	Livestock auction	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	X	X	X	X	P	X	X	X	X	X	X	X	X	X	X	X		X	§ 20.10.010 § 20.10.020	

	Use	Residential																Commercial						Manufacturing				Special Purpose														Supplemental Standards	Accessory Uses Permitted to Specific Use
		R-1	R-2	R-2A	R-3	R-3A	R-4	R-5	RMH	A-1	A-2	A-3	A-4	A-O	A-3/O	A-M	C-OP	C-1	C-2	C-3	C-4	C-5	Q	M-1	M-2	M-3	R-F	PMD****	S-D**	U-P**	P-R I**	P-R II**	P-C**	P-I**	SRR**	R-MU**	G-MU**	I-MU**	NOS	URD		
1.00 Agricultural & related operations																																										
1.15	Livestock grazing	P	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	X	X	X	X	X	X	X	X	X	X	X	X	§ 20.10.010 § 20.10.020	
1.16	Nursery (industrial-scale)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	X	P	X	X	P	X	X	X	X	X	X	D	X	X	Z	Z		X	§ 20.10.010 § 20.10.020	
1.17	Pasturage (small or large animals)	P	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	X	X	X	X	X	X	X	X	X	X	X	X	§ 20.10.010; § 20.10.020 § 20.10.440	
1.18	Poultry hatchery	P	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	X	X	X	X	X	X	X	X	X	X		X	§ 20.10.010; § 20.10.020 § 20.10.480	
1.19	Produce stand	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	P	X	X	X	X	A	X	D	A	X	X	X	X	X	X	X	X		X	§ 20.10.010 § 20.10.020	
1.20	Raising (field. tree, bush crops)	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	D	D	D	D	D	D	D	D	Z	Z	Z	X	X	§ 20.10.010; § 20.10.020 § 20.10.220	
1.21	Raising (small or large animals)	P	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	X	X	X	X	X	X	X	X	X	X	X	X	§ 20.10.010 § 20.10.020	
1.22	Riding academy	S	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	E	X	X	X	X	X	X	X	X	Z	X	X		X	§ 20.10.010 § 20.10.020	
1.23	Stable (including breeding)	P	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	X	X	X	X	X	X	X	X	X	X		X	§ 20.10.010 § 20.10.020	
1.24	Veterinary treatment center (large animals)	S	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	X	X	X	X	P	X	X	X	X	X	X	X	X	X	Z	X		X	§ 20.10.010; § 20.10.020 § 20.10.080	
1.25	Veterinary treatment center (small animals)	S	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	P	P	P	X	X	X	X	X	P	X	S	X	X	X	S	X	X	Z	Z	Z		X	§ 20.10.010; § 20.10.020 § 20.10.080	

	Use	Residential															Commercial					Manufacturing			Special Purpose												Supplemental Standards	Accessory Uses Permitted to Specific Use
		R-1	R-2	R-2A	R-3	R-3A	R-4	R-5	RMH	A-1	A-2	A-3	A-4	A-O	A-3/O	A-M	C-OP	C-1	C-2	C-3	C-4	C-5	Q	M-1	M-2	M-3	R-F	PMD****	S-D**	U-P**	P-R I**	P-R II**	P-C**	P-I**	SRR**	R-MU**	G-MU**	I-MU**	NOS	URD		
	2.00 Commercial, storage & processing																																								
2.01	Automobile wrecking yard	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	P	P	X	X	X	X	X	X	X	X	X	X	X	X		X	§20.10.010; §20.10.020 §20.10.090	
2.02	Bottling works	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	P	X	P	P	X	X	X	P	X	X	D	X	X	X	Z		X	§20.10.010 §20.10.020	
2.03	Boutique bottling	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	X	P	X	P	P	X	X	D	P	X	X	D	X	X	Z			X	§20.10.010; §20.10.020 §20.10.060	
2.04	Contractor yard (large)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	X	X	P	P	P	X	X	X	X	X	X	X	X	Z	Z			X	§20.10.010; §20.10.020; §20.10.160	
2.05	Contractor yard (small)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	P	P	X	X	P	P	P	X	X	X	X	X	X	X	X	Z	Z			X	§20.10.010; §20.10.020 §20.10.160	
2.06	Explosives (storage)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	A	S	S	S	S	S	X	X	X	X	X	X	X	X	X			X	§20.10.010; §20.10.020 §20.10.210	
2.07	Food storage locker	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	X	X	P	P	P	X	X	X	X	X	X	X	X	X	Z			X	§20.10.010 §20.10.020	
2.08	General warehouse	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	X	P	P	P	X	X	X	X	X	X	D	X	Z	Z			X	§20.10.010; §20.10.020 §20.10.250	
2.09	Liquified petroleum gas (storage & dispensing)		X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	S	S	S	S	X	X	X	X	X	X	X	Z	X			X	§20.10.010; §20.10.020 §20.10.310	
2.10	Motor vehicle storage yard	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	X	P	P	P	X	X	X	X	X	X	X	X	X	X	X		X	§20.10.010; §20.10.020 §20.10.090	
2.11	Motor vehicle wrecking yard	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	X	X	X	X	X	X	X	X	X	X	X		X	§20.10.010; §20.10.020 §20.10.090	
2.12	Moving & storage facility	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	X	P	P	P	X	X	D	X	X	X	X	X	X	X	Z		X	§20.10.010 §20.10.020	
2.13	Office warehouse	X	X	X	X	X	X	X	X	X	X	X	X	P	P	X	P	P	P	P	P	X	X	P	P	P	X	X	X	X	X	X	D	X	X	Z	Z		X	§20.10.010; §20.10.020 §20.10.420	

	Use	Residential																Commercial					Manufacturing			Special Purpose												Supplemental Standards	Accessory Uses Permitted to Specific Use
		R-1	R-2	R-2A	R-3	R-3A	R-4	R-5	RMH	A-1	A-2	A-3	A-4	A-O	A-3/O	A-M	C-OP	C-1	C-2	C-3	C-4	C-5	Q	M-1	M-2	M-3	R-F	PMD****	S-D**	U-P**	P-R I**	P-R II**	P-C**	P-I**	SRR**	R-MU**	G-MU**	I-MU**	NOS	URD	
2.00 Commercial, storage & processing																																							
2.14	Salvage yard (scrap materials)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	X	X	X	X	X	X	D	X	X	Z	Z	Z		X	§ 20.10.010 § 20.10.020
2.15	Self storage warehouse	X	X	X	X	X	X	X	X	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	X	X	X	X	X	X	D	X	X	Z	Z	Z		X	§ 20.10.010; § 20.10.020 § 20.10.610
2.16	Storage of supplies, equipment, goods	X	X	X	X	X	X	X	X	X	X	X	A	A	A	X	A	A	A	A	A	A	A	A	A	A	X	X	A	X	X	A	D	X	X	X	X	A		X	§ 20.10.010 § 20.10.020 § 20.10.630 § 20.10.385
3.00 Educational, institutional & social uses																																								
3.01	Adult day care center	X	X	X	X	X	X	X	X	X	X	S	S	S	S	X	P	P	P	P	P	P	X	P	X	X	X	X	D	X	X	S	D	X	S	X	Z	X		X	§ 20.10.010; § 20.10.020 § 20.10.450
3.02	Art gallery	S	S	S	S	S	S	S	S	P	P	P	P	P	P	S	P	P	P	P	P	P	X	X	X	X	S	S	D	S	D	S	S	D	X	S	Z	Z		X	§ 20.10.010 § 20.10.020
3.03	Child care facility, Type 3	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	P	P	P	P	P	P	X	X	X	X	S	S	D	S	S	S	S	D	X	S	X	Z		X	§ 20.10.010; § 20.10.020 § 20.10.140
3.04	Child care facility, Type 4	X	X	X	X	X	X	X	X	S	S	S	S	S	S	S	P	P	P	P	P	P	X	A	A	A	X	S	D	S	P	S	S	S	S	S	X	Z	A	X	§ 20.10.010; § 20.10.020 § 20.10.140
3.05	Child care facility, Type 5	X	X	X	X	X	X	X	X	S	S	S	S	S	S	S	P	P	P	P	P	P	X	A	A	A	X	S	D	S	S	S	S	A	S	S	X	Z	A	X	§ 20.10.010; § 20.10.020 § 20.10.140
3.06	Child care facility, Type 6	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	X	A	A	A	P	D	D	D	D	D	D	A	D	Z	Z	A		X	§ 20.10.010; § 20.10.020 § 20.10.140
3.07	Child care facility, Type 7	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	P	P	P	P	P	X	X	X	X	S	X	D	S	S	S	S	X	S	S	X	X	X	X	§ 20.10.010; § 20.10.020 § 20.10.140

	Use	Residential															Commercial					Manufacturing				Special Purpose											Supplemental Standards	Accessory Uses Permitted to Specific Use
		R-1	R-2	R-2A	R-3	R-3A	R-4	R-5	RMH	A-1	A-2	A-3	A-4	A-O	A-3/O	A-M	C-OP	C-1	C-2	C-3	C-4	C-5	Q	MI-1	MI-2	MI-3	R-F	PMD****	S-D**	U-P**	P-R I**	P-R II**	P-C**	P-I**	SRR**	R-MU**	G-MU**	I-MU**	NOS	URD		
	3.00 Educational, institutional & social uses																																								
3.08	Child care institution	X	X	X	X	X	X	X	X	X	X	X	X	S	S	S	S	S	S	P	P	P	X	X	X	X	X	S	X	X	X	X	X	X	X	X	X	X		X	§20.10.010; §20.10.020 §20.10.140
3.09	Church	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	D	D	D	D	D	D	D	D	Z	Z	Z		X	§20.10.010; §20.10.020 §20.10.495
3.10	Community recreation facility		D	D	D	D	D	D	D	D	D	D	D	D	D	D	D	D	D	D	D	D	X	X	X	X	D	D	D	D	D	D	D	X	D	Z	Z	X		X	§20.10.010; §20.10.020 §20.10.145 §20.10.495
3.11	Convent	S	S	S	S	S	S	S	S	S	P	P	P	P	P	P	P	P	P	P	P	P	X	X	X	X	S	D	D	D	D	D	D	X	D	Z	Z	X		X	§20.10.010 §20.10.020
3.12	Correctional facility, detention center	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	P	P	P	X	P	P	P	S	X	X	X	X	X	X	X	X	Z		Z		X	§20.10.010; §20.10.020 §20.10.260
3.125 [1]	Halfway houses	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	S	X	S	X	X	S	X	X	X	X	X	X	X	X	X		X		X	§20.10.010; §20.10.020; §20.10.266
3.125 [2]	Emergency shelter	X	X	X	X	X	X	X	X	P	P	P	P	P	P	P	P	P	P	P	P	P	X	X	X	X	S	X	X	X	X	X	X	X	X	X		X		X	§20.10.010; §20.10.020
3.1265	Homeless shelters	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	S	X	S	X	X	S	X	X	X	X	X	X	X	X	X		X		X	§20.10.010; §20.10.020; §20.10.275
3.13	Library	S	S	S	S	S	S	S	S	S	D	D	D	D	D	S	D	D	D	D	D	D	X	D	X	X	S	D	D	S	S	D	X	S	Z	Z		X		X	§20.10.010; §20.10.020 §20.10.145 §20.10.495
3.14	Lodge	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	P	P	P	P	P	P	X	X	X	X	S	D	D	S	S	D	X	S	Z	Z		X		X	§20.10.010 §20.10.020
3.15	Monastery	S	S	S	S	S	S	S	S	S	P	P	P	P	P	P	P	P	P	P	P	P	X	X	X	X	S	D	D	D	D	D	X	D	Z	Z		X		X	§20.10.010 §20.10.020
3.16	Museum	S	S	S	S	S	S	S	S	S	D	D	D	D	D	D	D	D	D	D	D	D	X	X	X	X	S	D	D	S	S	D	X	S	Z	Z		X		X	§20.10.010; §20.10.020 §20.10.145 §20.10.495
3.17	Orphanage, shelter	S	S	S	S	S	S	S	S	S	P	P	P	P	P	P	P	P	P	P	P	P	X	X	X	X	S	D	D	S	S	D	X	S	Z	Z		X		X	§20.10.010; §20.10.020 §20.10.140

	Use	Residential																Commercial						Manufacturing				Special Purpose														Supplemental Standards	Accessory Uses Permitted to Specific Use
		R-1	R-2	R-2A	R-3	R-3A	R-4	R-5	RMH	A-1	A-2	A-3	A-4	A-O	A-3/O	A-M	C-OP	C-1	C-2	C-3	C-4	C-5	Q	M-1	M-2	M-3	R-F	PMD****	S-D**	U-P**	P-R I**	P-R II**	P-C**	P-I**	SRR**	R-MU**	G-MU**	I-MU**	NOS	URD		
3.00 Educational, institutional & social uses																																										
3.175	Reserved.																																										
3.18	Penal facility	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	S	S	P	S	S	S	S	S	X	X	X	X	X	X	X	X	X	X	Z		X	§ 20.10.010 § 20.10.020	
3.19	School—Elementary (Pre-K through 6)	D	D	D	D	D	D	D	D	D	D	D	D	D	D	D	D	D	D	D	D	D	X	X	X	X	D	D	D	D	D	D	D	X	D	Z	Z	Z		X	§ 20.10.010; § 20.10.020 § 20.10.145 § 20.10.495	
3.20	School—Secondary (7 through 12)	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	X	X	X	X	P	D	D	D	D	D	D	X	S	Z	Z	Z		X	§ 20.10.010; § 20.10.020 § 20.10.495	
3.21	School, trade	X	X	X	X	X	X	X	X	X	X	S	S	S	S	S	S	P	P	P	P	P	X	P	P	P	S	X	D	D	S	S	D	X	S	Z	Z	Z		X	§ 20.10.010 § 20.10.020	
3.22	School, vocational	X	X	X	X	X	X	X	X	X	X	S	S	S	S	S	S	P	P	P	P	P	X	P	P	P	S	X	D	D	S	S	D	X	S	Z	Z	Z		X	§ 20.10.010 § 20.10.020	
3.23	Social, fraternal club	S	S	S	S	S	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	X	X	X	X	S	S	D	D	D	D	D	X	S	Z	Z	Z		X	§ 20.10.010 § 20.10.020	
3.24	Synagogue	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	D	D	D	D	D	D	D	D	Z	Z	Z		X	§ 20.10.010; § 20.10.020 § 20.10.495	
3.25	Temple	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	D	D	D	D	D	D	D	D	Z	Z	Z		X	§ 20.10.010; § 20.10.020 § 20.10.495	
3.26	Union hall	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	P	P	P	P	P	P	X	X	X	X	S	S	D	D	S	S	D	X	S	Z	Z	Z		X	§ 20.10.010 § 20.10.020	
3.27	University, college	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	P	P	P	P	P	X	X	X	X	S	X	D	S	S	S	D	X	S	Z	Z	Z		X	§ 20.10.010; § 20.10.020 § 20.10.495	
3.28	Youth organization (with/without living facility)	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	P	P	P	P	P	P	X	X	X	X	S	S	D	D	S	S	D	X	S	Z	Z	Z		X	§ 20.10.010; § 20.10.020 § 20.10.495	

	Use	Residential															Commercial					Manufacturing				Special Purpose												Supplemental Standards	Accessory Uses Permitted to Specific Use
		R-1	R-2	R-2A	R-3	R-3A	R-4	R-5	RMH	A-1	A-2	A-3	A-4	A-O	A-3/O	A-M	C-OP	C-1	C-2	C-3	C-4	C-5	Q	M-1	M-2	M-3	R-F	PMD****	S-D**	U-P**	P-R I**	P-R II**	P-C**	P-I**	SRR**	R-MU**	G-MU**	I-MU**	NOS	URD		
	4.00 Office & research services																																								
4.01	Automated Teller Machine (ATM)	X	X	X	X	X	X	X	X	X	A	A	A	A	A	A	P	P	P	P	P	P	A	A	A	A	A	X	D	D	X	X	D	A	D	Z	Z	Z		X	§20.10.010 §20.10.020	
4.02	Bank	X	X	X	X	X	X	X	X	X	X	X	X	S	S	X	P	P	P	P	P	P	X	P	P	P	X	X	D	D	X	X	D	D	S	Z	Z	Z		X	§20.10.010; §20.10.020 §20.10.110	
4.03	Courier & message service	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	P	P	P	P	X	X	X	X	X	X	D	D	X	X	D	X	X	Z	Z	X		X	§20.10.010 §20.10.020	
4.035	Credit access businesses	X	X	X	X	X	X	X	X	X	X	X	X	S	S	X	P	S	S	S	S	S	X	X	X	X	X	X	D	D	X	X	D	X	S	Z	Z	X		X	§20.10.165	
4.04	Credit union	X	X	X	X	X	X	X	X	X	X	X	X	S	S	X	P	P	P	P	P	P	X	P	P	P	X	X	D	D	X	X	D	D	S	Z	Z	Z		X	§20.10.010; §20.10.020 §20.10.110	
4.05	Data processing center	X	X	X	X	X	X	X	X	X	X	P	P	P	P	X	P	P	P	P	P	P	X	P	X	X	X	X	D	D	X	X	D	D	X	Z	Z	Z		X	§20.10.010 §20.10.020	
4.055	Data processing center (hyperscale)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	X	X	P	X	X	P	P	X	X	X	D	D	X	X	D	D	X	Z	X	X		X	§20.10.010 §20.10.020	
4.06	Employment agency	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	P	P	X	P	X	X	X	X	D	D	X	X	D	D	X	Z	Z	Z		X	§20.10.010; §20.10.020	
4.07	Financial institution	X	X	X	X	X	X	X	X	X	X	X	X	S	S	X	P	P	P	P	P	P	X	P	P	P	X	X	D	D	X	X	D	D	S	Z	Z	Z		X	§20.10.010; §20.10.020 §20.10.110	
4.08	Office, administrative & manager's	X	X	X	X	X	X	X	X	S	P	P	P	P	P	X	P	P	P	P	P	P	X	P	P	P	X	A	D	P	A	A	D	D	D	Z	Z	Z		X	§20.10.010 §20.10.020	
4.09	Office, business	X	X	X	X	X	X	X	X	S	S	S	S	P	P	X	P	P	P	P	P	P	X	P	P	P	X	X	D	P	X	X	D	D	S	Z	Z	Z		X	§20.10.010 §20.10.020	
4.10	Office, medical																																								§20.10.010; §20.10.020 §20.10.040	Florist, gift shop, pharmacy and similar uses per Section 20.10.040
4.11	Office, professional	X	X	X	X	X	X	X	X	S	S	S	S	P	P	X	P	P	P	P	P	P	X	P	P	P	X	X	D	P	X	X	D	D	S	Z	Z	Z		X	§20.10.010 §20.10.020	

	Use	Residential															Commercial						Manufacturing				Special Purpose													Supplemental Standards	Accessory Uses Permitted to Specific Use
		R-1	R-2	R-2A	R-3	R-3A	R-4	R-5	RMH	A-1	A-2	A-3	A-4	A-O	A-3/O	A-M	C-OP	C-1	C-2	C-3	C-4	C-5	Q	M-1	M-2	M-3	R-F	PMD****	S-D**	U-P**	P-R I**	P-R II**	P-C**	P-I**	SRR**	R-MU**	G-MU**	I-MU**	NOS	URD		
4.00 Office & research services																																									
4.12	Radio broadcasting studio	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	P	P	X	P	P	P	X	X	D	X	X	X	D	D	X	X	Z	Z		X	§ 20.10.010; § 20.10.020 § 20.10.700	
4.13	Research laboratory	X	X	X	X	X	X	X	X	X	X	X	X	P	P	X	P	P	P	P	P	P	X	P	P	P	X	X	D	X	X	X	D	D	X	X	Z	Z		X	§ 20.10.010 § 20.10.020	
4.14	School, arts & crafts	X	X	X	X	X	X	X	X	X	X	X	X	P	P	X	P	P	P	P	P	P	X	X	X	X	X	X	D	P	X	X	D	X	S	Z	Z	X		X	§ 20.10.010 § 20.10.020	
4.15	Studio, dance	X	X	X	X	X	X	X	X	X	X	X	X	P	P	X	P	P	P	P	P	P	X	X	X	X	X	X	D	P	X	X	D	X	S	Z	Z	X		X	§ 20.10.010 § 20.10.020	
4.16	Studio, music	X	X	X	X	X	X	X	X	X	X	X	X	P	P	X	P	P	P	P	P	P	X	X	X	X	X	X	D	P	X	X	D	X	S	Z	Z	X		X	§ 20.10.010 § 20.10.020	
4.17	Studio, photography	X	X	X	X	X	X	X	X	X	X	X	X	P	P	X	P	P	P	P	P	P	X	X	X	X	X	X	D	P	X	X	D	X	S	Z	Z	X		X	§ 20.10.010 § 20.10.020	
4.18	Telemarketing agency	X	X	X	X	X	X	X	X	X	X	X	X	S	S	X	P	P	P	P	P	P	X	P	P	P	X	X	D	D	X	X	D	D	X	Z	Z	Z		X	§ 20.10.010 § 20.10.020	
4.19	Television broadcasting studio	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	P	P	X	P	P	P	X	X	D	D	X	X	D	D	X	X	Z	Z		X	§ 20.10.010; § 20.10.020 § 20.10.700	

	Use	Residential															Commercial						Manufacturing				Special Purpose													Supplemental Standards	Accessory Uses Permitted to Specific Use
		R-1	R-2	R-2A	R-3	R-3A	R-4	R-5	RMH	A-1	A-2	A-3	A-4	A-O	A-3/O	A-M	C-OP	C-1	C-2	C-3	C-4	C-5	Q	M-1	M-2	M-3	R-F	PMD****	S-D**	U-P**	P-R I**	P-R II**	P-C**	P-I**	SRR**	R-MU**	G-MU**	I-MU**	NOS	URD		
5.00 Manufacturing, processing & assembling																																									
5.01	Animal food manufacturing	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	X	X	X	X	X	X	X	D	X	X	X	Z		X	§ 20.10.010 § 20.10.020	
5.02	Animal slaughtery & processing	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	S	X	X	X	X	X	X	X	X	X	X	Z		X	§ 20.10.010 § 20.10.020	
5.03	Apparel manufacturing	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	X	P	P	P	X	X	X	X	X	X	X	D	X	X	Z	Z		X	§ 20.10.010 § 20.10.020	
5.04	Beverage product manufacturing	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	X	P	P	P	X	X	X	X	X	X	X	D	X	X	X	Z		X	§ 20.10.010 § 20.10.020	
5.05	Bread & bakery product manufacturing	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	X	P	P	P	X	X	X	X	X	X	X	D	X	X	Z	Z		X	§ 20.10.010 § 20.10.020	
5.06	Brewery	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	S	S	X	P	P	P	S	X	X	P	X	X	X	D	X	X	Z	Z		X	§ 20.10.010 § 20.10.020	

	Use	Residential															Commercial				Manufacturing			Special Purpose													Supplemental Standards	Accessory Uses Permitted to Specific Use
		R-1	R-2	R-2A	R-3	R-3A	R-4	R-5	RMH	A-1	A-2	A-3	A-4	A-O	A-3/O	A-M	C-OP	C-1	C-2	C-3	C-4	C-5	Q	M-1	M-2	M-3	R-F	PMD****	S-D**	U-P**	P-R I**	P-R II**	P-C**	P-I**	SRR**	R-MU**	G-MU**	I-MU**	NOS	URD	
5.00 Manufacturing, processing & assembling																																							
5.065	Brewpub	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	P	X	X	X	X	X	D	P	X	X	D	D	X	X	Z		X	§20.10.010 §20.10.020
5.07	Chemical manufacturing	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	X	X	X	X	X	D	D	X	X	Z		X	§20.10.010 §20.10.020
5.08	Coal products manufacturing	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	X	X	X	X	X	X	X	X	X	Z		X	§20.10.010 §20.10.020
5.09	Commercial & service industry manufacturing	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	X	P	P	P	X	X	X	X	X	X	D	X	X	Z		X	§20.10.010 §20.10.020
5.11	Computer product manufacturing	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	P	P	P	P	X	X	X	X	X	X	D	X	X	Z		X	§20.10.010 §20.10.020
5.12	Dairy product processing	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	P	P	P	P	S	X	X	X	X	X	D	X	X	Z		X	§20.10.010 §20.10.020
5.13	Electronic product assembly or manufacturing	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	P	P	P	P	X	X	X	X	X	X	D	X	X	Z		X	§20.10.010 §20.10.020
5.14	Fabricated metal product manufacturing	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	P	P	P	P	X	X	X	X	X	X	D	X	X	Z		X	§20.10.010 §20.10.020
5.15	Food manufacturing, other	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	X	X	X	X	X	X	D	X	X	Z		X	§20.10.010; §20.10.020 §20.10.350
5.16	Food preparation or assembly	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	P	P	P	P	X	X	X	X	X	X	X	X	X	Z		X	§20.10.010 §20.10.020
5.17	Grain & oil seed milling	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	P	P	P	P	S	X	X	X	X	X	X	X	X	Z		X	§20.10.010 §20.10.020
5.18	Household product manufacturing	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	X	X	X	X	X	X	D	X	X	Z		X	§20.10.010 §20.10.020
5.19	Leather & allied product manufacturing	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	P	P	P	P	X	X	X	X	X	X	D	X	X	Z		X	§20.10.010 §20.10.020
5.20	Machinery manufacturing	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	X	X	X	X	X	X	D	X	X	Z		X	§20.10.010 §20.10.020
5.21	Nonmetallic mineral product manufacturing	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	X	X	X	X	X	X	D	X	X	Z		X	§20.10.010 §20.10.020
5.22	Paper products manufacturing	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	X	X	X	X	X	X	D	X	X	Z		X	§20.10.010 §20.10.020
5.23	Petroleum products manufacturing	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	X	X	X	X	X	X	X	X	X	X		X	§20.10.010 §20.10.020

	Use	Residential															Commercial					Manufacturing			Special Purpose										Supplemental Standards	Accessory Uses Permitted to Specific Use
		R-1	R-2	R-2A	R-3	R-3A	R-4	R-5	RMH	A-1	A-2	A-3	A-4	A-O	A-3/O	A-M	C-OP	C-1	C-2	C-3	C-4	C-5	Q	M-1	M-2	M-3	R-F	PMD****	S-D**	U-P**	P-R I**	P-R II**	P-C**	P-I**	SRR**	R-MU**	G-MU**	I-MU**	NOS	URD	
5.00 Manufacturing, processing & assembling																																								
5.235	Plastic products finishing	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	X	X	X	X	X	X	X	X	X	X	X	X		X	§ 20.10.010 § 20.10.020
5.24	Plastic products manufacturing	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	P	P	P	X	X	X	X	X	X	X	X	X	X	X	X		X	§ 20.10.010 § 20.10.020
5.25	Primary metal manufacturing	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	X	X	X	X	X	X	X	X	X	X	X	X		X	§ 20.10.010 § 20.10.020
5.26	Processing facility (heavy)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	X	X	X	X	X	X	X	X	X	X	X	X		X	§ 20.10.010; § 20.10.020 § 20.10.490
5.27	Processing facility (light)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	P	P	X	X	X	X	X	X	X	X	X	X	X	X		X	§ 20.10.010; § 20.10.020 § 20.10.490
5.27.5	Processing facility (waste)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	X	X	X	X	X	X	X	X	X	X	X	X		X	§ 20.10.010; § 20.10.020 § 20.10.490
5.28	Recycling collection facility (large)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	P	P	P	P	X	X	X	X	X	X	X	X	X	X	Z	Z			§ 20.08.010; § 20.08.020 § 20.08.520
5.29	Recycling collection facility (small)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	A	A	A	A	A	X	A	A	A	A	X	X	X	X	X	X	A	X	X	A	A	A		X	§ 20.10.010; § 20.10.020 § 20.10.520
5.30	Reverse vending machines	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	A	A	A	A	A	A	A	A	A	A	X	X	X	X	X	X	A	X	X	A	A	A		X	§ 20.10.010; § 20.10.020 § 20.10.580
5.31	Rubber products manufacturing	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	X	X	X	X	X	X	X	X	X	X	X	X		X	§ 20.10.010; § 20.10.020
5.32	Seafood product preparation & processing	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	X	X	X	X	X	X	D	X	X	X	X	Z		X	§ 20.10.010; § 20.10.020
5.33	Sugar & confectionery product manufacturing	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	X	P	P	P	X	X	X	X	X	X	D	X	X	X	X	Z		X	§ 20.10.010; § 20.10.020
5.34	Testing laboratory	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	S	P	P	X	A	P	P	P	X	X	X	X	X	X	S	X	X	X	X	Z		X	§ 20.10.010; § 20.10.020
5.35	Textile mill	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	X	P	P	P	X	X	X	X	X	X	X	X	X	X	X	Z		X	§ 20.10.010; § 20.10.020
5.36	Textile product mill	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	X	P	P	P	X	X	X	X	X	X	X	X	X	X	X	Z		X	§ 20.10.010; § 20.10.020
5.37	Tobacco product manufacturing	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	X	X	X	X	X	X	D	X	X	X	X	Z		X	§ 20.10.010; § 20.10.020

	Use	Residential																Commercial					Manufacturing			Special Purpose											Supplemental Standards	Accessory Uses Permitted to Specific Use
		R-1	R-2	R-2A	R-3	R-3A	R-4	R-5	RMH	A-1	A-2	A-3	A-4	A-O	A-3/O	A-M	C-OP	C-1	C-2	C-3	C-4	C-5	Q	M-1	M-2	M-3	R-F	PMD****	S-D**	U-P**	P-R I**	P-R II**	P-C**	P-I**	SRR**	R-MU**	G-MU**	I-MU**	NOS	URD		
5.00 Manufacturing, processing & assembling																																									
5.38	Transfer station	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	S	X	P	P	X	X	X	X	X	X	X	X	X	X	X	Z		X	§ 20.10.010; § 20.10.020	
5.39	Transportation equipment manufacturing	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	S	X	P	P	X	X	X	X	X	X	X	X	X	X	X	X			§ 20.10.010; § 20.10.020	
5.40	Wood products manufacturing	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	S	X	P	P	X	X	X	X	X	X	X	D	X	X	X	Z		X	§ 20.10.010; § 20.10.020	
6.00 Medical & related uses																																										
6.01	Assisted living facility (elderly)	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	X	X	X	X	P	D	D	D	D	D	D	Z	X	X	X	X		X	§ 20.10.010; § 20.10.020; § 20.10.450; § 20.10.175; § 20.10.265	
6.02	Clinic	S	S	S	S	S	S	S	S	P	P	P	P	P	P	P	P	P	P	P	P	P	X	X	X	X	S	X	D	D	D	D	D	D	S	Z	Z	X		X	§ 20.10.010; § 20.10.020	Florist, gift shop, pharmacy and similar uses per Section 20.10.040
6.03	Convalescent home	P	P	X	P	X	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	X	X	X	X	P	D	D	X	D	D	X	X	D	Z	X	X		X	§ 20.10.010; § 20.10.020; § 20.10.450; § 20.10.175; § 20.10.265	
6.04	Drug store	X	X	X	X	X	X	X	X	S	S	S	S	S	S	X	A	P	P	P	P	P	X	A	A	A	X	X	D	D	X	D	X	X	S	Z	Z	Z		X	§ 20.10.010; § 20.10.020	
6.05	Hospital	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	P	P	P	P	P	X	X	X	X	S	S	D	X	S	S	D	X	S	Z	Z	X		X	§ 20.10.010; § 20.10.020	Florist, gift shop, pharmacy and similar uses per Section 20.10.040

	Use	Residential																Commercial					Manufacturing			Special Purpose												Supplemental Standards	Accessory Uses Permitted to Specific Use
		R-1	R-2	R-2A	R-3	R-3A	R-4	R-5	RMH	A-1	A-2	A-3	A-4	A-O	A-3/O	A-M	C-OP	C-1	C-2	C-3	C-4	C-5	Q	MI-1	MI-2	MI-3	R-F	PMD****	S-D**	U-P**	P-R I**	P-R II**	P-C**	P-I**	SRR**	R-MU**	G-MU**	I-MU**	NOS	URD		
6.00 Medical & related uses																																									
6.06	Intermediate care facility (elderly)	P	P	X	P	X	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	X	X	X	X	P	D	D	X	D	D	X	X	D	Z	X	X	X	X	§ 20.10.010; § 20.10.020; § 20.10.450; § 20.10.175; § 20.10.265
6.07	Medical lab	S	S	S	S	S	S	S	S	S	S	S	S	P	P	S	P	P	P	P	P	P	X	X	X	X	S	D	D	D	S	S	D	X	S	Z	Z	X		X	§ 20.10.010; § 20.10.020
6.08	Medical treatment facility	S	S	S	S	S	S	S	S	P	P	P	P	P	P	P	P	P	P	P	P	P	X	X	X	X	S	D	D	D	S	S	D	D	S	Z	Z	X		X	§ 20.10.010; § 20.10.020
6.09	Nursing home	P	P	X	P	X	P	P	P	P	P	P	P		P	P	P	P	P	P	P	P	X	X	X	X	P	D	D	X	D	D	X	X	D	Z	X	X		X	§ 20.10.010; § 20.10.020; § 20.10.450; 20.10.175; 20.10.265
6.10	Optical dispensary	X	X	X	X	X	X	X	X	X	X	S	P	P	P	X	A	P	P	P	P	P	X	X	X	X	X	D	D	X	X	D	X	X	D	Z	Z	X		X	§ 20.10.010; § 20.10.020
6.11	Pharmacy	X	X	X	X	X	X	X	X	X	X	S	A	A	A	X	A	P	P	P	P	P	X	X	X	X	X	D	D	X	X	D	X	X	S	Z	Z	X		X	§ 20.10.010; § 20.10.020
6.12	Rest home	P	P	X	P	X	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	X	X	X	X	P	D	D	X	D	D	X	X	D	Z	X	X		X	§ 20.10.010; § 20.10.020; § 20.10.450; § 20.10.175; § 20.10.265
6.13	Sanitarium	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	P	P	P	P	P	X	X	X	X	S	S	D	X	S	D	X	S	S	Z	Z	X		X	§ 20.10.010; § 20.10.020; § 20.10.450
7.00 Mining & quarrying operations																																									
7.01	Batching plant	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	S	P	P	S	X	X	X	X	X	X	X	X	X	X	X		X	§ 20.10.010; § 20.10.020
7.02	Borrow pit (commercial)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	S	P	P	S	X	X	X	X	X	X	X	X	X	X	X		X	§ 20.10.010; § 20.10.020
7.03	Drilling gas well	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	X	X	S	S	S	S	X	S	X	X	X	S	X	X	X	X	X		X	§ 20.10.010; § 20.10.020; § 20.10.180

	Use	Residential															Commercial					Manufacturing			Special Purpose											Supplemental Standards	Accessory Uses Permitted to Specific Use
		R-1	R-2	R-2A	R-3	R-3A	R-4	R-5	RMH	A-1	A-2	A-3	A-4	A-O	A-3/O	A-M	C-OP	C-1	C-2	C-3	C-4	C-5	Q	M-1	M-2	M-3	R-F	PMD****	S-D**	U-P**	P-R I**	P-R II**	P-C**	P-I**	SRR**	R-MU**	G-MU**	I-MU**	NOS	URD	
7.00 Mining & quarrying operations																																								
7.04	Drilling oil well	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	X	X	P	P	S	S	X	X	X	X	X	X	X	X	X	X	X		X	§ 20.10.010; § 20.10.020; § 20.10.180
7.05	Quarry	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	X	X	S	X	X	X	X	X	X	X	X	X	X	X		X	§ 20.10.010; § 20.10.020; § 20.10.500 Buildings, equipment, supplies or land used for processing, storage, maintenance or sale of materials; operating and security personnel offices.
7.06	Raw material processing	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	S	P	P	S	X	X	X	X	X	X	X	X	X	X	X		X	§ 20.10.010; § 20.10.020
7.07	Sand & gravel extraction	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	X	X	X	X	X	P	S	P	P	S	X	X	X	X	X	X	X	X	X	X	X		X	§ 20.10.010; § 20.10.020
7.08	Shaft mining	S	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	S	S	S	X	X	X	X	X	X	X	X	X	X	X	X		X	§ 20.10.010; § 20.10.020
7.09	Strip mining	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	S	P	P	X	X	X	X	X	X	X	X	X	X	X	X		X	§ 20.10.010; § 20.10.020
8.00 Motor vehicle sale & service operations																																									
8.01	Ambulance service	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	X	X	P	A	A	X	X	X	X	X	X	X	X	X	Z	Z	Z		X	§ 20.10.010; § 20.10.020
8.02	Automobile (sales, service, storage & rental)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	X	X	P	A	A	X	X	X	X	X	X	X	X	X	Z	Z	Z		X	§ 20.10.010; § 20.10.020; § 20.10.090
8.03	Automobile part sales	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	X	X	P	P	X	X	X	X	X	X	X	D	X	X	X	Z	Z		X	§ 20.10.010; § 20.10.020; § 20.10.090

	Use	Residential															Commercial					Manufacturing			Special Purpose										Supplemental Standards	Accessory Uses Permitted to Specific Use
		R-1	R-2	R-2A	R-3	R-3A	R-4	R-5	RMH	A-1	A-2	A-3	A-4	A-O	A-3/O	A-M	C-OP	C-1	C-2	C-3	C-4	C-5	Q	M-1	M-2	M-3	R-F	PMD****	S-D**	U-P**	P-R I**	P-R II**	P-C**	P-I**	SRR**	R-MU**	G-MU**	I-MU**	NOS	URD	
8.00 Motor vehicle sale & service operations																																								
8.04	Automotive rental location (satellite)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	P	P	X	P	X	X	X	X	D	X	X	X	D	X	X	X	Z		X	§20.10.010; §20.10.020; §20.10.090
8.05	Automotive repair garage	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	P	X	X	P	P	P	X	X	S	X	X	X	X	X	X	X	Z		X	§20.10.010; §20.10.020; §20.10.090
8.06	Automotive service station	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	P	P	P	P	P	X	P	P	P	X	X	D	X	X	X	D	X	X	X	Z		X	§20.10.010; §20.10.020; §20.10.090
8.07	Boat, boat-trailer (sales, service, storage & rental)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	X	X	P	P	P	X	X	S	X	X	X	D	X	X	X	Z		X	§20.10.010; §20.10.020; §20.10.090
8.08	Bus (sales, service, storage & rental)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	X	X	P	P	P	X	X	S	X	X	X	S	X	X	X	Z		X	§20.10.010; §20.10.020; §20.10.090
8.09	Carwash, full-service	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	P	P	P	P	X	P	P	P	X	X	S	X	X	X	S	X	X	X	Z		X	§20.10.010; §20.10.020; §20.10.120
8.10	Carwash, self-service	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	P	P	P	P	P	X	P	P	P	X	X	D	X	X	X	D	X	X	X	Z		X	§20.10.010; §20.10.020; §20.10.120
8.11	Commercial fueling station	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	P	P	P	P	X	P	P	P	X	X	S	X	X	X	S	D	X	X	Z		X	§20.10.010; §20.10.020
8.12	Contractor equipment (sales, storage, repair & rental)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	X	P	P	P	X	X	S	X	X	X	S	X	X	X	Z		X	§20.10.010; §20.10.020; §20.10.160
8.13	Farm equipment (sales, storage, repair & rental)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	X	P	P	P	X	X	X	X	X	X	X	X	X	X	Z		X	§20.10.010; §20.10.020
8.14	Heavy equipment (sales, storage, repair & rental)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	X	P	P	P	X	X	X	X	X	X	X	X	X	X	Z		X	§20.10.010; §20.10.020
8.15	Heavy truck (sales, storage, repair & rental)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	X	P	P	P	X	X	X	X	X	X	X	D	X	X	Z		X	§20.10.010; §20.10.020; §20.10.090

	Use	Residential														Commercial					Manufacturing				Special Purpose										Supplemental Standards	Accessory Uses Permitted to Specific Use
		R-1	R-2	R-2A	R-3	R-3A	R-4	R-5	RMH	A-1	A-2	A-3	A-4	A-O	A-3/O	A-M	C-OP	C-1	C-2	C-3	C-4	C-5	Q	M-1	M-2	M-3	R-F	PMD****	S-D**	U-P**	P-R I**	P-R II**	P-C**	P-I**	SRR**	R-MU**	G-MU**	I-MU**	NOS	URD	
	8.00 Motor vehicle sale & service operations																																							
8.16	Light truck (sales, service, storage & rental)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	X	X	P	A	A	X	X	X	X	X	X	X	X	X	X	Z	Z		X	§ 20.10.010; § 20.10.020; § 20.10.090
8.17	Light truck part sales	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	P	X	P	P	P	X	X	X	D	X	X	X	X	X	X	Z	Z		X	§ 20.10.010; § 20.10.020; § 20.10.090
8.18	Manufactured home (sales, display & repair)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	X	X	P	P	X	X	X	X	D	X	X	X	X	X	X	Z	Z		X	§ 20.10.010; § 20.10.020
8.19	Mobile home (sales, display & repair)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	X	X	P	P	X	X	X	X	D	X	X	X	X	X	X	Z	Z		X	§ 20.10.010; § 20.10.020
8.20	Motor vehicle repair, major	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	X	X	P	P	P	X	X	X	D	X	X	X	X	X	X	Z	Z		X	§ 20.10.010; § 20.10.020; § 20.10.090
8.21	Motor vehicle repair, minor	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	X	X	P	P	P	X	X	X	D	X	X	X	X	X	X	Z	Z		X	§ 20.10.010; § 20.10.020; § 20.10.090
8.22	Motorcycle (sales, service, storage & rental)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	X	X	P	P	X	X	X	X	X	X	X	X	X	X	X	Z	Z		X	§ 20.10.010; § 20.10.020; § 20.10.090
8.23	Recreation vehicle park	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	X	X	X	X	S	X	X	X	X	X	X	X	X	X	X	Z	Z		X	§ 20.10.010; § 20.10.020; § 20.10.510
8.24	Trailer, 18-wheeler (sales, display & repair)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	X	X	P	P	P	X	X	X	X	X	X	X	X	X	X	Z	Z		X	§ 20.10.010; § 20.10.020; § 20.10.090
8.25	Truck stop	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	X	P	P	P	X	X	X	X	X	X	X	X	X	X	X	Z		X	§ 20.10.010; § 20.10.020

	Use	Residential																Commercial					Manufacturing			Special Purpose												Supplemental Standards	Accessory Uses Permitted to Specific Use
		R-1	R-2	R-2A	R-3	R-3A	R-4	R-5	RMH	A-1	A-2	A-3	A-4	A-O	A-3/O	A-M	C-OP	C-1	C-2	C-3	C-4	C-5	Q	M-1	M-2	M-3	R-F	PMD****	S-D**	U-P**	P-R I**	P-R II**	P-C**	P-I**	SRR**	R-MU**	G-MU**	I-MU**	NOS	URD		
9.00 Parking & Loading																																									
9.01	Garage, structured, parking (commercial)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	P	P	X	P	P	P	X	X	D	D	X	X	D	X	X	Z	Z	Z		X	§ 20.10.010; § 20.10.020; Chapter 20.14	
9.02	Garage or lot, parking (community)	X	X	X	X	X	X	X	X	X	X	X	X	S	S	X	P	P	P	P	P	P	X	P	P	P	X	X	D	D	X	X	D	X	X	X	Z	Z	X	X	§ 20.10.010; § 20.10.020; Chapter 20.14	
9.03	Garage or lot, parking (private)	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	P	P	P	P	P	X	P	P	P	A	A	D	D	A	A	D	A	A	A	Z	Z		X	§ 20.10.010; § 20.10.020	
9.04	Loading spaces (serving another property)	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	Z	Z		X	§ 20.10.010; § 20.10.020; § 20.10.330	
9.05	On-site loading	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A		X	§ 20.10.010; § 20.10.020; Chapter 20.14	
9.06	On-site parking	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	X	§ 20.10.010; § 20.10.020; Chapter 20.14	
9.07	Parking reduction	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	Z	Z	Z	X	§ 20.10.010; § 20.10.020; Chapter 20.14	
9.08	Parking spaces (serving another property)	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	X	S	S	S	S	S	Z	Z	Z		X	§ 20.10.010; § 20.10.020; 20.10.410	
9.09	Unenclosed parking space shelter	X	X	X	X	X	X	X	X	A	A	A	A	A	A	X	A	A	A	A	A	A	X	A	A	A	X	X	A	X	X	A	A	A	X	X	X	X		X	§ 20.10.010; § 20.10.020; § 20.10.720	

	Use	Residential														Commercial					Manufacturing				Special Purpose										Supplemental Standards	Accessory Uses Permitted to Specific Use
		R-1	R-2	R-2A	R-3	R-3A	R-4	R-5	RMH	A-1	A-2	A-3	A-4	A-O	A-3/O	A-M	C-OP	C-1	C-2	C-3	C-4	C-5	Q	M-1	M-2	M-3	R-F	PMD****	S-D**	U-P**	P-R I**	P-R II**	P-C**	P-I**	SRR**	R-MU**	G-MU**	I-MU**	NOS	URD		
	10.00 Personal services																																									
10.01	Barber shop	X	X	X	X	X	X	X	X	X	X	X	S	S	S	X	S	P	P	P	P	P	X	X	X	X	X	X	P	X	X	D	A	S	Z	Z	X		X	§20.10.010; §20.10.020	
10.02	Beauty salon	X	X	X	X	X	X	X	X	X	X	X	S	S	S	X	S	P	P	P	P	P	X	X	X	X	X	X	P	X	X	D	A	S	Z	Z	X		X	§20.10.010; §20.10.020	
10.03	Cemetery	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	X	X	X	X	X	X	X	X	X	X	S	X	P	X	X	X	X	X	Z	Z	X		X	§20.10.010; §20.10.020	
10.04	Crematorium	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	X	X	S	S	S	S	X	X	X	X	S	X	P	X	X	D	X	X	Z	Z	X		X	§20.10.010; §20.10.020	
10.05	Dry cleaning shop (< 2,500 square feet)	X	X	X	X	X	X	X	X	X	X	S	S	P	P	X	P	P	P	P	P	P	X	X	X	X	X	X	D	X	X	D	X	S	Z	Z	X		X	§20.10.010; §20.10.020; §20.10.190	
10.06	Dry cleaning shop (>2,500 square feet)	X	X	X	X	X	X	X	X	X	X	S	S	S	S	X	S	P	P	P	P	P	X	X	X	X	X	X	D	X	X	D	X	S	Z	Z	X		X	§20.10.010; §20.10.020; §20.10.190	
10.07	Dry-cleaners (commercial)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	X	X	P	P	P	X	X	X	X	X	X	D	X	X	Z	Z	X		X	§20.10.010; §20.10.020; §20.10.190	
10.08	Extermination service	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	X	X	P	P	P	X	X	X	X	X	X	D	X	X	Z	Z	X		X	§20.10.010; §20.10.020	
10.09	Funeral home	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	X	X	X	X	X	X	X	X	X	X	X	X	X	X	Z	Z	X		X	§20.10.010; §20.10.020	
10.10	Laundromat, laundry (<5,000 square feet)	X	X	X	X	X	X	X	X	X	S	S	S	P	P	X	P	P	P	P	P	P	X	X	X	X	X	X	D	P	X	D	X	S	Z	Z	X		X	§20.10.010; §20.10.020; §20.10.300	
10.11	Laundromat, laundry (>5,000 square feet)	X	X	X	X	X	X	X	X	X	S	S	S	S	S	S	S	P	P	P	P	P	X	X	X	X	X	X	D	D	X	D	X	S	Z	Z	X		X	§20.10.010; §20.10.020; §20.10.300	
10.12	Laundry (commercial)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	X	X	P	P	P	X	X	X	X	X	X	D	X	X	Z	Z	X		X	§20.10.010; §20.10.020; §20.10.300	
10.13	Locksmith	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	P	P	X	X	X	X	X	X	D	P	X	D	X	S	X	Z	X		X	§20.10.010; §20.10.020	
10.14	Massage parlor	X	X	X	X	X	X	X	X	X	X	X	S	P	P	X	P	P	P	P	P	P	X	X	P	P	P	X	X	D	P	X	D	X	X	Z	Z		X	§20.10.010; §20.10.020	
10.15	Mausolcum	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	X	X	X	X	X	X	X	X	X	X	X	S	X	X	X	X	X	X	X	Z	Z	X		X	§20.10.010; §20.10.020	
10.16	Mortuary	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	X	X	X	X	X	X	X	X	X	X	X	X	X	X	Z	Z		X	§20.10.010; §20.10.020	

	Use	Residential														Commercial					Manufacturing			Special Purpose											Supplemental Standards	Accessory Uses Permitted to Specific Use
		R-1	R-2	R-2A	R-3	R-3A	R-4	R-5	RMH	A-1	A-2	A-3	A-4	A-O	A-3/O	A-M	C-OP	C-1	C-2	C-3	C-4	C-5	Q	M-1	M-2	M-3	R-F	PMD****	S-D**	U-P**	P-R I**	P-R II**	P-C**	P-I**	SRR**	R-MU**	G-MU**	I-MU**	NOS	URD	
10.00 Personal services																																								
10.17	Photofinishing lab	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	P	P	X	P	X	X	X	X	D	X	X	X	D	D	X	Z	Z	X		§ 20.10.010; § 20.10.020
10.18	Shoe repair shop	X	X	X	X	X	X	X	X	X	X	X	X	X	S	X	P	P	P	P	P	P	X	X	X	X	X	X	D	P	X	X	D	X	S	Z	Z	X		§ 20.10.010; § 20.10.020
10.19	Tattoo parlor	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	P	P	X	P	P	P	X	X	D	P	X	X	D	X	X	X	Z	Z		§ 20.10.010; § 20.10.020
10.20	Taxidermist	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	P	P	X	X	X	X	X	X	D	D	X	X	D	X	X	X	Z	X		§ 20.10.010; § 20.10.020
	11.00 Recreation, amusement & entertainment																																							
11.01	Adult motion picture theatre	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X		X	§ 20.10.010; § 20.10.020; § 20.10.620
11.02	Amusement game complex	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	P	P	P	P	X	X	X	X	X	X	S	D	X	X	D	X	X	X	Z	X		X	§ 20.10.010; § 20.10.020
11.03	Amusement park	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	S	X	X	X	S	X	X	X	X	X	X	X	X	X	Z	X		X	§ 20.10.010; § 20.10.020
11.04	Athletic facility (indoor)	X	X	X	X	X	A	A	X	A	A	A	A	A	A	X	P	P	P	P	P	P	X	P	A	A	A	A	D	D	A	A	D	D	S	Z	Z	X		X	§ 20.10.010; § 20.10.020
11.05	Athletic facility (outdoor)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	X	X	X	X	S	X	X	X	X	X	X	X	X	X	Z	X		X	§ 20.10.010; § 20.10.020
11.055	Aquarium	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	X	X	X	X	X	X	X	X	X	X	X	X	X	X	Z	X		X	§ 20.10.010; § 20.10.020
11.06	Ballroom	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	S	P	P	X	X	X	X	X	X	X	D	X	X	D	X	X	X	Z	X		X	§ 20.10.010; § 20.10.020
11.07	Billiard & pool hall	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	X	X	X	X	X	X	P	P	X	X	D	X	X	X	Z	X		X	§ 20.10.010; § 20.10.020
11.08	Bingo hall	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	X	X	X	X	X	X	X	X	X	X	D	X	X	X	Z	X		X	§ 20.10.010; § 20.10.020
11.09	Bowling alley	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	X	X	X	X	X	X	X	X	X	X	D	X	X	X	Z	X		X	§ 20.10.010; § 20.10.020

	Use	Residential														Commercial					Manufacturing				Special Purpose										Supplemental Standards	Accessory Uses Permitted to Specific Use
		R-1	R-2	R-2A	R-3	R-3A	R-4	R-5	RMH	A-1	A-2	A-3	A-4	A-O	A-3/O	A-M	C-OP	C-1	C-2	C-3	C-4	C-5	Q	M-1	M-2	M-3	R-F	PMD****	S-D**	U-P**	P-R I**	P-R II**	P-C**	P-I**	SRR**	R-MU**	G-MU**	I-MU**	NOS	URD		
	11.00 Recreation, amusement & entertainment																																								
11.10	Campground	S	S	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	S	X	X	X	P	X	X	X	X	X	X	X	X	X	X	X	S	X	§20.10.010; §20.10.020 §20.10.385	
11.11	Coliseum	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	X	X	X	X	S	X	X	X	X	X	X	X	X	X	Z	Z		X	§20.10.010; §20.10.020	
11.12	Community recreational facility	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	X	X	X	X	X	X	X	X	P	S	D	P	D	D	D	X	S	Z	Z	X		X	§20.10.010; §20.10.020; §20.10.060	Sale of alcoholic beverages within a publicly owned facility provided they are consumed on the premises.
11.13	Convention center	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	X	X	X	X	X	X	X	P	X	X	X	D	X	X	X	X		X	§20.10.010; §20.10.020	
11.14	Dancehall	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	S	P	P	X	X	X	X	X	A	D	X	D	A	A	D	X	Z	Z	X		X	§20.10.010; §20.10.020	
11.15	Exercise facility (indoor)	X	X	X	X	X	X	X	X	A	A	A	A	A	A	X	P	P	P	P	P	P	X	A	A	A	X	A	D	D	A	D	D	D	X	Z	Z	X		X	§20.10.010; §20.10.020	
11.16	Exhibition hall	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	X	X	X	X	X	X	X	P	X	X	X	D	X	X	X	X		X	§20.10.010; §20.10.020	
11.17	Fairground	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	S	X	X	X	S	X	X	S	X	X	X	X	X	X	X	X		X	§20.10.010; §20.10.020	
11.18	Gambling casino	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	S	X	X	X	X	S	X	X	X	X	X	X	X	X	Z	X	X		X	§20.10.010; §20.10.020	
11.19	Go-cart track	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	P	X	X	X	X	S	X	X	X	X	X	X	X	X	X	X	X		X	§20.10.010; §20.10.020	
11.20	Golf course < 75 acres (with/without restaurant & bar)	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	X	S	S	S	S	S	S	S	X	S	S	S	X	X	Z	Z	X		X	§20.10.010; §20.10.020; §20.10.060	
11.21	Golf course > 75 acres (with/without restaurant & bar)	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	X	P	P	P	P	P	D	D	X	D	D	D	X	X	Z	Z	X		X	§20.10.010; §20.10.020; §20.10.060	

	Use	Residential														Commercial					Manufacturing			Special Purpose										Supplemental Standards	Accessory Uses Permitted to Specific Use
		R-1	R-2	R-2A	R-3	R-3A	R-4	R-5	RMH	A-1	A-2	A-3	A-4	A-O	A-3/O	A-M	C-OP	C-1	C-2	C-3	C-4	C-5	Q	M-1	M-2	M-3	R-F	PMD****	S-D**	U-P**	P-R I**	P-R II**	P-C**	P-I**	SRR**	R-MU**	G-MU**	I-MU**	NOS	URD	
11.00 Recreation, amusement & entertainment																																									
11.22	Golf driving range	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	P	P	P	P	P	X	S	S	S	S	E	S	D	X	S	S	D	X	X	Z	X		X	§20.10.010; §20.10.020	
11.23	Ice skating facility	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	P	P	P	X	X	X	X	X	X	X	S	P	X	X	D	D	X	X	Z	X		X	§20.10.010; §20.10.020	
11.24	Laser games center	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	P	P	P	X	X	X	X	X	X	X	S	S	X	X	D	D	X	X	Z	X		X	§20.10.010; §20.10.020	
11.25	Miniature golf course	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	X	X	X	X	X	X	X	S	X	X	X	X	X	X	X	Z	X		X	§20.10.010; §20.10.020	
11.26	Movie theatre (indoor)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	P	X	X	X	X	X	X	D	D	D	X	X	D	D	X	Z	X		X	§20.10.010; §20.10.020	
11.27	Movie theatre, drive in (outdoor)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	P	S	P	X	X	X	X	X	X	X	X	X	X	X	X	X	X	Z	X		X	§20.10.010; §20.10.020	
11.28	Nightclub, bar, cocktail lounge	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	P	X	X	X	X	X	X	D	P	X	X	D	X	X	X	Z	X		X	§20.10.010; §20.10.020; §20.10.060	
11.29	Nude live entertainment club	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X		X	§20.10.010; §20.10.020; §20.10.620	
11.30	Open space (common, public or private)	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	D	D	D	D	D	D	D	D	Z	Z	Z	P	P	§20.10.010; §20.10.020	
11.31	Paint ball center (indoor)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	P	P	P	X	X	X	X	X	X	X	D	X	X	X	D	D	X	X	Z	X		X	§20.10.010; §20.10.020	
11.32	Paint ball center (outdoor)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	X	S	X	X	X	S	X	X	X	X	X	X	X	X	X	Z	X		X	§20.10.010; §20.10.020	
11.33	Park, playground	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	D	D	P	D	D	D	D	D	Z	Z	Z		X	§20.10.010; §20.10.020	
11.34	Racetrack, auto or truck	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	X	S	S	S	X	X	X	X	X	X	X	X	X	Z	Z		X	§20.10.010; §20.10.020	
11.35	Racetrack, motorcycle	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	X	S	S	S	X	X	X	X	X	X	X	X	X	Z	Z		X	§20.10.010; §20.10.020	
11.36	Racquetball club, indoor (with/without restaurant & bar)	X	X	X	X	X	X	X	X	A	A	A	A	A	A	X	P	P	P	P	P	P	X	A	A	A	X	A	D	D	D	D	D	S	Z	Z	X		X	§20.10.010; §20.10.020; §20.10.060	

	Use	Residential													Commercial					Manufacturing				Special Purpose										Supplemental Standards	Accessory Uses Permitted to Specific Use
		R-1	R-2	R-2A	R-3	R-3A	R-4	R-5	RMH	A-1	A-2	A-3	A-4	A-O	A-3/O	A-M	C-OP	C-1	C-2	C-3	C-4	C-5	Q	M-1	M-2	M-3	R-F	PMD****	S-D**	U-P**	P-R I**	P-R II**	P-C**	P-I**	SRR**	R-MU**	G-MU**	I-MU**	NOS	URD	
11.00 Recreation, amusement & entertainment																																								
11.37	Racquetball club, outdoor (with/without restaurant & bar)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	P	P	P	P	P	X	X	X	X	X	X	D	X	D	D	X	S	Z	Z	X		X	§20.10.010; §20.10.020; §20.10.060
11.38	Roller skating facility	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	P	P	P	X	X	X	X	X	X	X	S	P	X	X	D	D	X	X	Z	X		X	§20.10.010; §20.10.020
11.39	Sauna, exercise room	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A		X	§20.10.010; §20.10.020
11.40	Shooting range, archery or gun (indoor)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	X	P	P	P	P	X	X	X	X	X	X	X	X	X	X	Z		X	§20.10.010; §20.10.020
11.41	Shooting range, archery or gun (outdoor)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	X	P	P	P	P	X	X	X	X	X	D	D	X	X	Z	X		X	§20.10.010; §20.10.020
11.42	Skateboarding facility (indoor)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	P	P	P	P	X	X	X	X	P	X	S	X	X	X	D	D	X	X	Z	X		X	§20.10.010; §20.10.020
11.43	Skateboarding facility (outdoor)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	P	P	P	P	X	X	X	X	P	X	S	P	X	X	D	D	X	X	Z	X		X	§20.10.010; §20.10.020
11.44	Sports arena	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	X	P	P	X	X	X	S	P	X	X	X	X	X	X	Z	Z		X	§20.10.010; §20.10.020
11.45	Stadium	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	X	X	X	X	X	X	S	P	X	X	X	X	X	X	Z	Z		X	§20.10.010; §20.10.020
11.46	Swimming pool (commercial)	X	X	X	X	X	X	X	X	X	S	S	S	S	S	S	S	P	P	P	P	P	X	X	X	X	X	X	S	P	X	S	S	S	S	Z	Z	X		X	§20.10.010; §20.10.020; §20.10.640
11.47	Tennis club, indoor (with/without restaurant & bar)	S	S	S	S	S	S	S	S	S	S	S	S	P	P	S	P	P	P	P	P	P	X	P	P	P	P	S	S	D	D	D	D	D	S	Z	Z	X		X	§20.10.010; §20.10.020; §20.10.060; §20.10.690
11.48	Tennis club, outdoor (with/without restaurant & bar)	S	S	S	S	S	S	S	S	S	S	S	S	P	P	S	P	P	P	P	P	P	X	P	P	P	P	S	S	D	D	D	D	D	S	Z	Z	X		X	§20.10.010; §20.10.020; §20.10.060; §20.10.690
11.49	Theatre, performing	X	X	X	X	X	X	X	X	X	X	X	X	S	S	X	S	P	P	P	P	P	X	X	X	X	S	S	S	D	S	X	X	D	S	X	Z	X		X	§20.10.010; §20.10.020

	Use	Residential															Commercial					Manufacturing			Special Purpose											Supplemental Standards	Accessory Uses Permitted to Specific Use
		R-1	R-2	R-2A	R-3	R-3A	R-4	R-5	RMH	A-1	A-2	A-3	A-4	A-O	A-3/O	A-M	C-OP	C-1	C-2	C-3	C-4	C-5	Q	M-1	M-2	M-3	R-F	PMD****	S-D**	U-P**	P-R I**	P-R II**	P-C**	P-I**	SRR**	R-MU**	G-MU**	I-MU**	NOS	URD	
11.00 Recreation, amusement & entertainment																																								
11.50	Tramway	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	X	X	X	X	X	X	X	X	X	X	X	X	§ 20.10.010; § 20.10.020
12.00 Repair services																																									
12.01	Commercial equipment repair	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	A	P	P	P	X	X	X	X	X	X	X	X	X	Z	Z		X	§ 20.10.010; § 20.10.020
12.02	Electronic equipment repair	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	P	P	P	P	P	X	P	P	P	X	X	D	X	X	X	X	X	X	Z	Z		X	§ 20.10.010; § 20.10.020
12.03	Household goods repair	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	P	P	P	P	P	X	P	P	P	X	X	D	X	X	X	X	X	X	Z	Z		X	§ 20.10.010; § 20.10.020
12.04	Industrial equipment repair	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	P	A	P	P	P	X	X	X	X	X	X	X	X	X	Z	Z		X	§ 20.10.010; § 20.10.020
12.05	Personal goods repair	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	P	P	P	P	P	X	P	P	P	X	X	D	X	X	X	D	X	X	Z	Z		X	§ 20.10.010; § 20.10.020
12.06	Precision equipment repair	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	P	P	P	P	P	X	P	P	P	X	X	D	X	X	X	D	X	X	Z	Z		X	§ 20.10.010; § 20.10.020

	Use	Residential														Commercial						Manufacturing			Special Purpose											Supplemental Standards	Accessory Uses Permitted to Specific Use
		R-1	R-2	R-2A	R-3	R-3A	R-4	R-5	RMH	A-1	A-2	A-3	A-4	A-O	A-3/O	A-M	C-OP	C-1	C-2	C-3	C-4	C-5	Q	M-1	M-2	M-3	R-F	PMD****	S-D**	U-P**	P-R I**	P-R II**	P-C**	P-I**	SRR**	R-MLU**	G-MLU**	I-MLU**	NOS	URD		
	13.00 Residential																																								
13.01	Animals, keeping for enjoyment purposes	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A		X	§ 20.10.010; § 20.10.020; § 20.10.290	
13.02	Apartment (5 or more units)		X	X	X	X	X	X	X	P	P	P	P	P	P	P	X	P	P	P	P	P	X	X	X	X	X	D	D	D	D	D	X	X	D	Z	Z	X		X	§ 20.10.010; § 20.10.020; § 20.10.380	Administrative office, laundry room, sauna and exercise room, or vending machine per Section 20.10.050.
13.03	Bed and breakfast (residence)	S	S	S	S	S	S	S	S	P	P	P	P	S	P	P	X	S	S	S	S	P	X	X	X	X	X	S	S	S	X	X	X	X	S	Z	Z	X		X	§ 20.10.010; § 20.10.020	
13.04	Bed and breakfast inn	X	X	X	X	X	X	X	X	X	X	X	X	S	S	S	X	S	S	P	P	P	X	X	X	X	X	S	P	X	X	X	X	X	X	X	X	X		X	§ 20.10.010; § 20.10.020	
13.05	Reserved.																																									
13.06	Boarding home facility	P	P	X	P	X	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	X	X	X	X	P	D	D	X	D	D	X	X	D	Z	X	X	X		X	§ 20.10.010; § 20.10.020; § 20.10.450; § 20.10.175; § 20.10.265	
13.065	Disabled group dwelling	P	P	X	P	X	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	X	X	X	X	P	D	D	X	D	D	X	X	D	Z	X	X	X		X	§ 20.10.010; § 20.10.020; § 20.10.450; § 20.10.175	
13.07	Domestic garden house, toolhouse, playhouse	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	X	A	A	A	A	A	X	X	X	X	A	A	A	A	A	A	X	X	A	A	A	X		X	§ 20.10.010; § 20.10.020; § 20.10.050	
13.08	Domestic storage	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	X	A	A	A	A	A	X	X	X	X	A	A	A	A	A	A	X	X	A	A	A	X		X	§ 20.10.010; § 20.10.020; § 20.10.050	
13.09	Duplex (two-family dwelling)	X	X	X	X	X	P	P	X	P	P	P	P	P	P	P	X	X	X	X	X	X	X	X	X	X	X	D	D	X	D	D	X	X	D	Z	Z	X		X	§ 20.10.010; § 20.10.020	

	Use	Residential																Commercial					Manufacturing			Special Purpose											Supplemental Standards	Accessory Uses Permitted to Specific Use
		R-1	R-2	R-2A	R-3	R-3A	R-4	R-5	RMH	A-1	A-2	A-3	A-4	A-O	A-3/O	A-M	C-OP	C-1	C-2	C-3	C-4	C-5	Q	M-1	M-2	M-3	R-F	PMD****	S-D**	U-P**	P-R I**	P-R II**	P-C**	P-I**	SRR**	R-MU**	G-MU**	I-MU**	NOS	URD		
13.00 Residential																																									
13.10	Dwelling, resident watchman or property caretaker	X	X	X	X	X	X	X	X	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	X	A	X	X	X	A	A	Z	Z	Z	X		X	§20.10.010; §20.10.020; §20.10.530	
13.11	Family home	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	X	P	P	P	P	P	X	X	X	X	P	D	D	D	D	D	X	X	S	Z	X	X		X	§20.10.010; §20.10.020	
13.115	Group residential facility	S	S	X	S	X	S	S	S	P	P	P	P	P	P	P	P	P	P	P	P	P	X	X	X	X	P	D	D	D	D	D	X	X	D	Z	X	X		X	§20.10.010; §20.10.020; §20.10.450; 20.10.265	
13.12	Guest, employee quarters	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	X	X	X	X	X	X	X	X	X	A	A	A	A	A	A	X	X	A	A	X	X		X	§20.10.010; §20.10.020; §20.10.030	
13.13	Home occupation uses	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	X	X	X	X	X	X	X	X	X	X	A	A	A	A	A	A	X	X	A	A	A	X		X	§20.10.010; §20.10.020; §20.10.270	
13.15	Hotel	X	X	X	X	X	X	X	X	X	X	X	X	S	S	S	X	S	S	P	P	P	X	X	X	X	X	X	S	D	X	X	X	X	X	X	Z	X		X	§20.10.010; §20.10.020	
13.16	HUD-code manufactured home (single-family dwelling)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X		X	§20.10.010; §20.10.020	
13.17	HUD-code manufactured home park	X	X	X	X	X	X	X	X	S	S	S	S	S	S	P	X	S	S	P	P	X	X	X	X	X	X	X	D	X	X	X	X	X	X	X	Z	X		X	§20.10.010; §20.10.020; §20.10.340	Management office, community building, recreational facilities, toilets, showers, laundry and vending machines.
13.18	Industrialized home	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	X	X	X	X	X	X	X	X	X	X	P	D	D	X	D	D	X	X	D	Z	X	X		X	§20.10.010; §20.10.020	
13.19	Laundry room	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A		X	§20.10.010; §20.10.020; §20.10.030	

	Use	Residential													Commercial					Manufacturing			Special Purpose								Supplemental Standards	Accessory Uses Permitted to Specific Use
		R-1	R-2	R-2A	R-3	R-3A	R-4	R-5	RMH	A-1	A-2	A-3	A-4	A-O	A-3/O	A-M	C-OP	C-1	C-2	C-3	C-4	C-5	Q	M-1	M-2	M-3	R-F	PMD****	S-D**	U-P**	P-R I**	P-R II**	P-C**	P-I**	SRR**	R-MU**	G-MU**	I-MU**	NOS	URD	
13.00 Residential																																								
13.20	Live-work flex unit	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	P	P	P	P	P	X	P	P	P	X	X	D	X	X	D	D	D	X	Z	X		X	§20.10.010; §20.10.020; §20.10.320
13.21	Lodging house	X	X	X	X	X	X	X	X	P	P	P	P	P	P	P	P	P	P	P	P	P	X	X	X	X	X	X	D	X	X	D	D	D	X	X	X	X	X	§20.10.010; §20.10.020
13.22	Mobile home (single-family dwelling)	X	X	X	X	X	X	X	P	X	X	X	X	X	X	P	X	X	X	X	X	X	X	X	X	X	X	X	D	X	X	D	D	D	X	X	X	X	X	§20.10.010; §20.10.020
13.23	Mobile home park	X	X	X	X	X	X	X	X	S	S	S	S	S	S	P	X	S	S	P	P	X	X	X	X	X	X	X	D	X	Z	X	X	X	X	Z	X	X	X	§20.10.010; §20.10.020; §20.10.340	Management office, community building, recreational facilities, toilets, showers, laundry and vending machines.
13.24	Motel	X	X	X	X	X	X	X	X	X	X	X	X	S	S	S	X	S	S	P	P	P	X	X	X	X	X	X	S	D	X	X	X	X	X	Z	X		X	§20.10.010; §20.10.020	
13.25	Quadraplex	X	X	X	X	X	X	X	X	P	P	P	P	P	P	P	X	P	P	P	P	P	X	X	X	X	X	D	D	P	D	D	X	X	D	Z	X		X	§20.10.010; §20.10.020	
13.26	Ranch (>5 acres)	P	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	D	X	X	X	X	X	X	Z	X	X	X	§20.10.010; §20.10.020	
13.27	Ranchette (>1 acre & <5 acres)	P	P	P	P	P	P	P	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	X	X	X	X	X	X	X	Z	X	X	X	§20.10.010; §20.10.020	
13.28	Reserved.																																								
13.29	Secondary mobile home	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	X	X	X	X	X	X	X	X	X	X	X	X	§20.10.010; §20.10.020; §20.10.600	

	Use	Residential																Commercial					Manufacturing			Special Purpose										Supplemental Standards	Accessory Uses Permitted to Specific Use
		R-1	R-2	R-2A	R-3	R-3A	R-4	R-5	RMH	A-1	A-2	A-3	A-4	A-O	A-3/O	A-M	C-OP	C-1	C-2	C-3	C-4	C-5	Q	M-1	M-2	M-3	R-F	PMD****	S-D**	U-P**	P-R I**	P-R II**	P-C**	P-I**	SRR**	R-MU**	G-MU**	I-MU**	NOS	URD	
13.00 Residential																																								
13.30	Single-family attached dwelling (atrium, patio, townhouse, condominium)	X	X	X	X	X	X	P	X	P	P	P	P	P	P	P	X	P	P	P	P	P	X	X	X	X	X	D	D	D	D	X	X	D	Z	Z	X		X	§ 20.10.010; § 20.10.020; § 20.10.050	Administrative office, laundry room, sauna and exercise room, or vending machine per Section 20.10.050.
13.31	Single-family detached dwelling	P	P	P	P	P	P	P	X	P	P	P	P	P	P	P	X	X	X	X	X	X	X	X	X	X	P	D	D	X	D	D	D	D	D	Z	X	X		X	§ 20.10.010; § 20.10.020	
13.32	Swimming pool, game court (noncommercial)	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	Z	A	A		X	§ 20.10.010; § 20.10.020; § 20.10.640	
13.33	Triplex	X	X	X	X	X	X	X	X	P	P	P	P	P	P	P	X	P	P	P	P	P	X	X	X	X	X	D	D	P	D	D	X	X	D	Z	Z	X		X	§ 20.10.010; § 20.10.020	
13.35	Accessory dwelling unit	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	X	X	X	X	X	X	X	X	X	X	X	D	D	P	D	D	D	D	D	D	D	X		X	§ 20.010.10; § 20.010.20; § 20.010.35	
14.00 Sales, retail & wholesale																																									
14.01	Adult book store	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	P	X	X	X	X	X	D	D	P	X	X	X	X	X	Z	Z	X		X	§ 20.10.010; § 20.10.020; § 20.10.620	
14.02	Bakery	X	X	X	X	X	X	X	X	P	P	P	P	S	S	X	A	P	P	P	P	P	X	X	X	X	X	D	D	P	X	X	X	X	S	Z	Z	X		X	§ 20.10.010; § 20.10.020; § 20.10.100	
14.03	Book store	X	X	X	X	X	X	X	X	X	X	X	S	S	S	S	X	A	P	P	P	P	X	X	X	X	X	D	D	P	X	X	X	X	S	Z	Z	X		X	§ 20.10.010; § 20.10.020	
14.04	Boutique	X	X	X	X	X	X	X	X	X	X	X	S	S	S	S	X	A	P	P	P	P	X	X	X	X	X	D	D	P	X	X	X	X	S	Z	Z	X		X	§ 20.10.010; § 20.10.020	

	Use	Residential													Commercial				Manufacturing			Special Purpose										Supplemental Standards	Accessory Uses Permitted to Specific Use
		R-1	R-2	R-2A	R-3	R-3A	R-4	R-5	RMH	A-1	A-2	A-3	A-4	A-O	A-3/O	A-M	C-OP	C-1	C-2	C-3	C-4	C-5	Q	M-1	M-2	M-3	R-F	PMD****	S-D**	U-P**	P-R I**	P-R II**	P-C**	P-I**	SRR**	R-MLU**	G-MLU**	I-MLU**	NOS	URD	
14.00	**Sales, retail & wholesale**																																								
14.05	Cafeteria	X	X	X	X	X	X	X	X	X	X	X	S	A	A	A	A	P	P	P	P	P	X	A	A	A	X	X	D	P	X	X	D	A	X	X	Z	X		X	§20.10.010; §20.10.020
14.06	Cafeteria, school	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	X	X	X	X	A	A	D	P	X	X	D	X	A	A	A	A		X	§20.10.010; §20.10.020
14.07	Coin-operated vending machines (inside a building)			A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	D	P	X	X	D	X	A	A	A	A		X	§20.10.010; §20.10.020
14.08	Convenience store	X	X	X	X	X	X	X	X	S	S	S	S	S	S	S	A	P	P	P	P	P	X	A	A	A	X	X	D	P	D	S	D	X	S	S	Z	X		X	§20.10.010; §20.10.020
14.09	Convenience store with gas pumps	X	X	X	X	X	X	X	X	S	S	S	S	S	S	S	A	P	P	P	P	P	X	A	A	A	X	X	D	P	S	S	D	X	S	S	Z	X		X	§20.10.010; §20.10.020
14.091	Corner Store	X	X	X	X	X	X	X	X	X	X	X	X	P	P	X	P	P	P	P	P	P	X	X	X	X	X	X	D	P	D	D	D	D	P	Z	Z	Z		X	
14.10	Delicatessen	X	X	X	X	X	X	X	X	X	X	X	S	S	S	X	A	P	P	P	P	P	X	X	X	X	X	X	D	P	X	X	D	X	S	Z	Z	X		X	§20.10.010; §20.10.020
14.11	Drug store	X	X	X	X	X	X	X	X	X	X	X	S	S	S	X	A	P	P	P	P	P	X	A	A	A	X	X	D	P	X	X	D	A	S	Z	Z	X		X	§20.10.010; §20.10.020
14.12	Farm supply store	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	X	X	X	X	P	X	X	X	X	X	X	X	X	X	X	X		X	§20.10.010; §20.10.020
14.13	Feed dealer	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	X	X	X	X	X	P	X	D	X	X	X	X	X	X	X	X	X		X	§20.10.010; §20.10.020
14.14	Flea market (indoor)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	P	X	X	X	X	X	X	D	X	X	X	X	X	S	X	Z	X		X	§20.10.010; §20.10.020
14.15	Flea market (outdoor)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	P	X	X	X	X	X	X	D	X	X	X	X	X	S	X	Z	X		X	§20.10.010; §20.10.020; §20.10.430
14.16	Flower shop, florist	X	X	X	X	X	X	X	X	X	X	X	S	A	A	X	A	P	P	P	P	P	X	X	X	X	S	X	D	P	X	X	D	X	S	Z	Z	X		X	§20.10.010; §20.10.020
14.17	Grocery	X	X	X	X	X	X	X	X	X	X	X	S	S	S	X	S	P	P	P	P	P	X	X	X	X	X	X	D	P	X	X	D	X	S	Z	Z	X		X	§20.10.010; §20.10.020
14.18	Hobby store	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	P	P	P	P	P	X	X	X	X	X	X	D	P	X	X	D	X	S	X	Z	X		X	§20.10.010; §20.10.020
14.19	Home improvement center	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	X	P	X	X	X	X	X	X	X	X	X	D	X	X	Z	Z		X	§20.10.010; §20.10.020

	Use	Residential														Commercial					Manufacturing			Special Purpose										Supplemental Standards	Accessory Uses Permitted to Specific Use
		R-1	R-2	R-2A	R-3	R-3A	R-4	R-5	RMH	A-1	A-2	A-3	A-4	A-O	A-3/O	A-M	C-OP	C-1	C-2	C-3	C-4	C-5	Q	M-1	M-2	M-3	R-F	PMD****	S-D**	U-P**	P-R I**	P-R II**	P-C**	P-I**	SRR**	R-MU**	G-MU**	I-MU**	NOS	URD	
14.00	**Sales, retail & wholesale**																																								
14.20	Ice cream parlor	X	X	X	X	X	X	X	X	X	X	X	S	S	S	X	A	P	P	P	P	P	X	X	X	X	X	D	P	X	X	D	X	S	D	Z	X		X	§20.10.010; §20.10.020
14.21	Material sales (building & construction)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	X	X	P	X	X	X	X	X	X	X	X	X	D	X	X	Z	Z		X	§20.10.010; §20.10.020
14.22	Music store	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	P	P	P	P	P	X	X	X	X	X	X	D	X	X	X	X	D	X	S	Z	Z	X	X	§20.10.010; §20.10.020
14.23	Newspaper printing facility	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	X	P	P	P	X	X	X	X	X	X	X	P	X	X	Z	Z		X	§20.10.010; §20.10.020
14.24	Nursery, greenhouse	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	X	X	X	X	X	X	D	D	X	X	X	D	X	S	Z	Z	X	X	§20.10.010; §20.10.020
14.25	Other retail establishment (high-volume)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	X	P	P	P	X	X	X	X	X	X	X	D	X	X	Z	Z	X	X	§20.10.010; §20.10.020
14.26	Other retail establishment (low-volume)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	P	X	P	P	P	X	X	X	X	X	X	X	D	X	S	Z	Z	X	X	§20.10.010; §20.10.020
14.27	Other wholesale establishment (high-volume)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	X	P	P	P	X	X	X	X	X	X	X	D	X	X	X	Z	X	X	§20.10.010; §20.10.020
14.28	Other wholesale establishment (low-volume)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	X	P	P	P	X	X	X	X	X	X	X	D	X	X	X	Z	X	X	§20.10.010; §20.10.020
14.29	Package liquor store	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	P	X	X	X	X	X	X	D	D	X	X	X	D	A	X	Z	X	X	X	§20.10.010; §20.10.020; §20.10.060
14.30	Pawn shop	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	P	X	X	X	X	X	X	D	X	X	X	X	D	X	X	X	Z	X	X	§20.10.010; §20.10.020
14.31	Pet shop (including grooming)	X	X	X	X	X	X	X	X	X	X	X	X	S	S	X	X	P	P	P	P	P	X	X	X	X	S	X	D	X	X	X	X	D	X	S	X	Z	X	X	§20.10.010; §20.10.020; §20.10.460
14.32	Print & copy shop	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	P	X	X	X	X	X	X	D	D	X	X	X	D	X	S	X	Z	X	X	§20.10.010; §20.10.020
14.33	Produce stand	A	A	A	A	A	A	A	A	X	X	X	X	X	X	X	X	P	P	P	P	P	X	X	X	X	A	X	D	A	X	X			X	X	X	Z	X	X	§20.10.010; §20.10.020

	Use	Residential													Commercial					Manufacturing			Special Purpose										Supplemental Standards	Accessory Uses Permitted to Specific Use
		R-1	R-2	R-2A	R-3	R-3A	R-4	R-5	RMH	A-1	A-2	A-3	A-4	A-O	A-3/O	A-M	C-OP	C-1	C-2	C-3	C-4	C-5	Q	M-1	M-2	M-3	R-F	PMID****	S-D**	U-P**	P-R I**	P-R II**	P-C**	P-I**	SRR**	R-MU**	G-MU**	I-MU**	NOS	URD	
14.00 Sales, retail & wholesale																																								
14.34	Restaurant (drive-in or walk up)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	A	P	P	P	P	P	A	P	P	P	P	X	X	D	P	X	X	D	X	S	X	Z	X	X	X	§ 20.10.010; § 20.10.020; § 20.10.060; § 20.10.550
14.35	Restaurant (sit down)	A	A	A	A	A	A	A	A	A	A	A	S	A	A	A	A	P	P	P	P	P	A	P	P	P	P	A	A	D	P	X	X	D	X	S	X	Z	X	X	X	§ 20.10.010; § 20.10.020; § 20.10.060
14.36	Shopping center, community	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	P	X	X	X	X	P	X	S	D	D	X	X	D	X	X	Z	Z	X	X	X	§ 20.10.010; § 20.10.020
14.37	Shopping center, regional	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	X	X	X	X	P	X	X	D	X	X	X	D	X	X	Z	Z	X	X	X	§ 20.10.010; § 20.10.020
14.38	Snow cone, shaved ice stand or trailer	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	P	P	P	P	P	P	X	X	X	X	P	X	X	D	P	X	X	D	X	X	Z	Z	X	X	X	§ 20.10.010; § 20.10.020
14.39	Specialty shop	X	X	X	X	X	X	X	X	X	X	X	S	S	S	S	X	P	P	P	P	P	X	X	X	X	P	X	X	D	P	X	X	D	X	S	X	Z	X	S	X	§ 20.10.010; § 20.10.020; § 20.10.385
14.40	Sporting goods store	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	P	X	X	X	X	P	X	X	D	D	X	X	D	X	S	X	Z	X	X	X	§ 20.10.010; § 20.10.020
14.41	Supermarket	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	X	X	X	X	P	X	X	D	X	X	X	D	X	X	X	Z	X	X	X	§ 20.10.010; § 20.10.020
14.42	Superstore	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	X	X	X	X	P	X	X	D	X	X	X	D	X	X	X	Z	X	X	X	§ 20.10.010; § 20.10.020
14.43	Warehouse club	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	X	X	X	X	P	X	X	D	X	X	X	D	X	X	X	X	X	X	X	§ 20.10.010; § 20.10.020
15.00 Signs																																									
15.01	On-premises advertising	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A		Chapter 20.18
15.02	Off-premises advertising	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	X	X	P	P	P	X	X	X	X	X	X	X	X	X	X	X	X	X	X		Chapter 20.18

	Use	Residential																Commercial					Manufacturing			Special Purpose												Supplemental Standards	Accessory Uses Permitted to Specific Use
		R-1	R-2	R-2A	R-3	R-3A	R-4	R-5	RMH	A-1	A-2	A-3	A-4	A-O	A-3/O	A-M	C-OP	C-1	C-2	C-3	C-4	C-5	Q	M-1	M-2	M-3	R-F	PMD****	S-D**	U-P**	P-R I**	P-R II**	P-C**	P-I**	SRR**	R-MU**	G-MU**	I-MU**	NOS	URD		
16.00	**Temporary uses**																																								
16.01	Amusement rides (commercial)	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	P	P	P	P	P	P	S	X	P	P	X	X	P	P	P	X	P	P		X	§ 20.10.010; § 20.10.020; § 20.10.680	
16.02	Borrow pit (related to construction operations)	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	D	P	P	P	P	P	P	P	P		X	§ 20.10.010; § 20.10.020; § 20.10.680	
16.03	Christmas tree stand	X	X	X	X	X	X	X	X	X	X	X	X	P	P	X	P	P	P	P	P	P	X	X	X	X	P	X	X	X	X	X	P	X	X	X	P	X		X	§ 20.10.010; § 20.10.020; § 20.10.680	
16.04	Circus	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	P	P	P	P	P	P	P	P	P	P	S	X	P	D	A	A	P	P	P	X	P	P		X	§ 20.10.010; § 20.10.020; § 20.10.680	
16.05	Concrete mixing or batching plant	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P		P	P	P	P	P	P	P	P	P	P	P	P	X	P	P	P	P	P	P	P		X	§ 20.10.010; § 20.10.020; § 20.10.680	
16.06	Firewood sales	X	X	X	X	X	X	X	X	X	X	X	X	P	P	X	P	P	P	P	P	P	X	X	X	X	P	X	P	P	X	X	P	X	X	X	P	X		X	§ 20.10.010; § 20.10.020; § 20.10.680	
16.07	Garage sale	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	X	X	X	X	X	X	X	X	X	X	A	A	A	A	A	A	X	X	A	A	X	X		X	§ 20.10.010; § 20.10.020; § 20.10.680	
16.08	Mobile office/storage unit (related to construction operations)	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A		X	§ 20.10.010; § 20.10.020; § 20.10.680; § 20.10.650	
16.09	Mobile office/storage unit (related to sales or rental)	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A		X	§ 20.10.010; § 20.10.020; § 20.10.680; § 20.10.660	
16.10	Model dwelling	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	X	X	X	X	P	P	X	P	P	P	P	P	P	P	X		X	§ 20.10.010; § 20.10.020; § 20.10.680	
16.11	Neighborhood fair, carnival	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	P	P	P	P	P	P	P	P	P	P	S	X	P	P	A	A	P	P	P	X	P	P		X	§ 20.10.010; § 20.10.020; § 20.10.680	
16.115	X		X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	P	P	X	X	X	X	X	X	X	X	X	X	P	X	X	P	X	X		X	§ 20.10.010, § 20.10.020, § 20.10.680	

	Use	Residential														Commercial					Manufacturing			Special Purpose											Supplemental Standards	Accessory Uses Permitted to Specific Use
		R-1	R-2	R-2A	R-3	R-3A	R-4	R-5	RMH	A-1	A-2	A-3	A-4	A-O	A-3/O	A-M	C-OP	C-1	C-2	C-3	C-4	C-5	Q	M-1	M-2	M-3	R-F	PMD****	S-D**	U-P**	P-R I**	P-R II**	P-C**	P-I**	SRR**	R-MU**	G-MU**	I-MU**	NOS	URD	
16.00	**Temporary uses**																																							
16.12	Pumpkin patch	X	X	X	X	X	X	X	X	X	X	X	X	P	P	X	P	P	P	P	P	P	X	X	X	X	P	X	P	X	X	P	X	X	X	P	X	X		X	§ 20.10.010; § 20.10.020; § 20.10.680	
16.13	Recycling collection facility (small)	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A		X	§ 20.10.010; § 20.10.020; § 20.10.520; § 20.10.680	In a residential, R-F, P-R I, P-R II, SRR and R-MU zoning district, a small recycling collection facility is permitted when accessory to a church, school or community center only.
16.14	Rummage sale	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	X	X	X	X	X	X	X	X	X	X	A	A	A	A	A	X	X	A	A	X	X		X	§ 20.10.010; § 20.10.020; § 20.10.680	
16.15	Sales stands (ranch & farm products)	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	P	P	P	P	P	P	X	X	X	X	A	X	P	X	X	P	X	X	X	A	X	X		X	§ 20.10.010; § 20.10.020; § 20.10.670; § 20.10.680	
16.16	Temporary events on public rights-of-way	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A		X	§ 20.10.010; § 20.10.020; Chapter 15.08	
16.17	Temporary subdivision kiosk signs																																								§ 20.18	
16.18	Tents (special events)	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P		X	§ 20.10.010; § 20.10.020; § 20.10.680	
16.19	Yard sale	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	X	X	X	X	X	X	X	X	X	X	A	A	A	A	A	A	X	X	A	A	X	X		X	§ 20.10.010; § 20.10.020; § 20.10.680; § 20.10.750	

	Use	Residential																Commercial						Manufacturing				Special Purpose													Supplemental Standards	Accessory Uses Permitted to Specific Use
		R-1	R-2	R-2A	R-3	R-3A	R-4	R-5	RMH	A-1	A-2	A-3	A-4	A-O	A-3/O	A-M	C-OP	C-1	C-2	C-3	C-4	C-5	Q	M-1	M-2	M-3	R-F	PMD****	S-D**	U-P**	P-R I**	P-R II**	P-C**	P-I**	SRR**	R-MU**	G-MU**	I-MU**	NOS	URD		
17.00 Towers & related structures																																										
17.01	Amateur & CB radio stations (federally licensed)	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A		X	§ 20.10.010; § 20.10.020; § 20.10.070	
17.02	Personal Wireless Service Facility (PWSF), facility-mounted	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	D	D	D	D	D	D	D	D	Z	Z	Z		X	§ 20.10.010; § 20.10.020; § 20.10.455	
17.03	PWSF, ground-mounted	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	P	P	P	P	P	P	P	P	P	S	S	S	S	S	S	S	D	S	Z*	Z*	Z*		X	§ 20.10.010; § 20.10.020; § 20.10.455	
17.04	PWSF, roof-mounted	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	D	D	D	D	D	D	D	D	Z	Z	Z		X	§ 20.10.010; § 20.10.020; § 20.10.455	
17.05	Radio broadcasting antenna	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	P	P	P	P	S	S	S	S	S	S	S	D	S	Z	Z	Z		X	§ 20.10.010; § 20.10.020; § 20.10.700	
17.06	Radio receiving station (residential-type)	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A		X	§ 20.10.010; § 20.10.020; § 20.10.710	
17.07	Satellite receiving dish, antenna	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A		X	§ 20.10.010; § 20.10.020; § 20.10.590	
17.08	Solar conversion system	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A		X	§ 20.10.010; § 20.10.020; § 20.10.200	
17.09	Television broadcasting antenna	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	P	P	P	P	S	S	S	S	S	S	S	D	S	Z	Z	Z		X	§ 20.10.010; § 20.10.020; § 20.10.700	
17.10	Television receiving station (residential-type)	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A	A		X	§ 20.10.010; § 20.10.020; § 20.10.710	
17.11	Wind-driven electrical generator, pump	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	Z	Z	Z		X	§ 20.10.010; § 20.10.020; § 20.10.200	

* In addition to the use being permitted through a Master Zoning Plan, the use is only allowed by an additional Special Permit with a detailed site plan approval in the respective zoning district obtained from the city council in accordance with Chapter 20.04 (Administrative Provisions), and shall be subject to the general restrictions and performance standards found in Chapter 20.10 (Supplemental Use Regulations) and other applicable regulations of this title.

	Use	Residential														Commercial					Manufacturing				Special Purpose										Supplemental Standards	Accessory Uses Permitted to Specific Use
		R-1	R-2	R-2A	R-3	R-3A	R-4	R-5	RMH	A-1	A-2	A-3	A-4	A-O	A-3/O	A-M	C-OP	C-1	C-2	C-3	C-4	C-5	Q	M-1	M-2	M-3	R-F	PMD****	S-D**	U-P**	P-R I**	P-R II**	P-C**	P-I**	SRR**	R-MU**	G-MU**	I-MU**	NOS	URD	
18.00	**Transportation related uses**																																								
18.01	Airpad	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	P	P	P	P	S	S	S	S	S	S	S	S	Z	Z	Z		X	§20.10.010; §20.10.020; §20.10.240	
18.02	Airport	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	X	X	X	X	X	X	X	X	X	X	X		X	§20.10.010; §20.10.020; §20.10.240	
18.03	Auxiliary rail facilities	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	A	A	P	P	P	P	X	X	X	X	X	X	D	X	X	X	X		X	§20.10.010; §20.10.020; §20.10.240	
18.04	Auxiliary tracks	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	A	A	P	P	P	P	X	X	X	X	X	X	D	X	X	X	X		X	§20.10.010; §20.10.020; §20.10.240	
18.05	Diesel maintenance facility	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	P	X	X	X	X	X	X	X	X	Z	X	X		X	§20.10.010; §20.10.020; §20.10.240	
18.06	Heliport	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	S	S	X	P	P	P	X	X	X	X	X	X	S	X	X	X	X		X	§20.10.010; §20.10.020; §20.10.240	
18.07	Helistop	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	P	P	P	P	S	S	S	S	S	S	S	S	Z	Z	Z		X	§20.10.010; §20.10.020; §20.10.240	
18.08	Interlocking tower	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	S	P	S	P	X	P	P	X	X	X	X	X	X	D	X	X	X	X		X	§20.10.010; §20.10.020; §20.10.240	
18.09	Intermodal facility	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	X	X	X	X	X	X	X	X	X	X	X		X	§20.10.010; §20.10.020; §20.10.240	
18.10	Motor carrier/freight terminal	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	X	X	P	P	P	X	X	X	X	X	X	D	X	X	X	Z		X	§20.10.010; §20.10.020; §20.10.240	
18.11	Passenger station	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	S	S	S	P	X	P	P	P	X	X	S	X	X	X	D	X	X	Z	Z		X	§20.10.010; §20.10.020; §20.10.240	
18.12	Railroad R.O.W.	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	D	X	§20.10.010; §20.10.020	
18.13	Railroad repair shop	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	X	X	X	X	X	X	X	X	X	X	X		X	§20.10.010; §20.10.020; §20.10.240	

	Use	Residential																Commercial					Manufacturing			Special Purpose												Supplemental Standards	Accessory Uses Permitted to Specific Use
		R-1	R-2	R-2A	R-3	R-3A	R-4	R-5	RMH	A-1	A-2	A-3	A-4	A-O	A-3/O	A-M	C-OP	C-1	C-2	C-3	C-4	C-5	Q	M-1	M-2	M-3	R-F	PMD****	S-D**	U-P**	P-R I**	P-R II**	P-C**	P-I**	SRR**	R-MU**	G-MU**	I-MU**	NOS	URD		
18.00 Transportation related uses																																									
18.14	Railroad spur tracks	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	A	A	P	P	P	X	X	X	X	X	X	X	D	X	X	X	Z		X	§ 20.10.010; § 20.10.020; § 20.10.240	
18.15	Railyard	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	P	P	P	X	X	X	X	X	X	X	X	X	X	X	X		X	§ 20.10.010; § 20.10.020; § 20.10.240	
18.16	Transportation terminal, Type A	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	S	P	P	P	X	P	P	P	X	X	S	X	X	X	X	D	X	X	X	Z		X	§ 20.10.010; § 20.10.020; § 20.10.240	
18.17	Transportation terminal, Type B	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	X	S	P	P	X	P	P	P	X	X	X	X	X	X	X	D	X	X	X	Z		X	§ 20.10.010; § 20.10.020; § 20.10.240	
19.00 Utility & miscellaneous governmental facilities																																									
19.01	Communication utility facility	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P		X	§ 20.10.010; § 20.10.020; § 20.10.730	
	Conservation easements	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	20.02.254	
19.02	Detention basin (public/private)	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P		S	§ 20.10.010; § 20.10.020; 20.10.555	
19.03	Governmental use, building	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	P	P	S	P	P	P	S	S	S	S	S	S	S	S	S	Z	Z	Z		X	§ 20.10.010; § 20.10.020; § 20.10.260	
19.04	Major utility facility	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	P	P	P	S	S	S	S	S	S	S	S	S	Z	Z	Z	S	S	§ 20.10.010; § 20.10.020; 20.10.555; § 20.10.730	
19.05	Minor utility facility	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	S	P	§ 20.10.010; § 20.10.020; § 20.10.730	

	Use	Residential													Commercial					Manufacturing			Special Purpose											Supplemental Standards	Accessory Uses Permitted to Specific Use
		R-1	R-2	R-2A	R-3	R-3A	R-4	R-5	RMH	A-1	A-2	A-3	A-4	A-O	A-3/O	A-M	C-OP	C-1	C-2	C-3	C-4	C-5	Q	M-1	M-2	M-3	R-F	PMD****	S-D**	U-P**	P-R I**	P-R II**	P-C**	P-I**	SRR**	R-MU**	G-MU**	I-MU**	NOS	URD		
19.00 Utility & miscellaneous governmental facilities																																									
19.06	Resource recovery plant	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	S	S	S	X	X	X	X	X	X	X	X	X	X	X	X		X	§20.10.010; §20.10.020; §20.10.730	Buildings, equipment, supplies or land used for processing, storage, maintenance or sale of materials; operating and security personnel offices.
19.07	Sanitary landfill	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	X	S	S	S	S	X	X	X	X	X	X	X	X	X	X	X	X		X	§20.10.010; §20.10.020	Buildings, equipment, supplies or land used for processing, storage, maintenance or sale of materials; operating and security personnel offices.
19.08	Streets and ROW (public or private)	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	S	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	A	S		§20.10.010; §20.10.020; §20.10.555	
19.09	Stormwater retention pond (public/private)	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	S	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	S	S		§20.10.010; §20.10.020; 20.10.555; §20.10.385	
	Stormwater open space	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P		20.02.1031	
	Utility green space	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P		20.10.557	
19.10	Utility storage yard	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	P	P	P	S	S	S	S	S	S	S	S	Z	Z	Z	Z	X		§20.10.010; §20.10.020; §20.10.730	

	Use	Residential															Commercial						Manufacturing				Special Purpose													Supplemental Standards	Accessory Uses Permitted to Specific Use
		R-1	R-2	R-2A	R-3	R-3A	R-4	R-5	RMH	A-1	A-2	A-3	A-4	A-O	A-3/O	A-M	C-OP	C-1	C-2	C-3	C-4	C-5	Q	M-1	M-2	M-3	R-F	PMD****	S-D**	U-P**	P-R I**	P-R II**	P-C**	P-I**	SRR**	R-MU**	G-MU**	I-MU**	NOS	URD		
19.00 Utility & miscellaneous governmental facilities																																									
19.11	Water & wastewater utility facility.	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	P	X	§ 20.10.010; § 20.10.020; § 20.10.730	

	Use	Residential															Commercial						Manufacturing				Special Purpose													Supplemental Standards	Accessory Uses Permitted to Specific Use
		R-1	R-2	R-2A	R-3	R-3A	R-4	R-5	RMH	A-1	A-2	A-3	A-4	A-O	A-3/O	A-M	C-OP	C-1	C-2	C-3	C-4	C-5	Q	M-1	M-2	M-3	R-F	PMD****	S-D**	U-P**	P-R I**	P-R II**	P-C**	P-I**	SRR**	R-MU**	G-MU**	I-MU**	NOS	URD		
OVERLAY DESIGNATIONS																																									
HPO	Historic Preservation Overlay	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S		X	§ 20.10.010; § 20.10.020; Chapter 20.20	
IDO	Infill Development Overlay	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	X	X	X	X	X	X	S	S	S	S	S	X	S	S	S	X		X	§ 20.10.010; § 20.10.020; § 20.10.280	
NCO	Neighborhood Conservation Overlay	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	S	X	X	X	X	X	X	S	S	S	S	S	X	S	S	S	X		X	§ 20.10.010; § 20.10.020; § 20.10.400	
PRO	Planned Residential Development Overlay	S	S	S	S	S	S	S	S	S	S	S	S	S	S	X	X	X	X	X	X	X	X	X	X	X	X	X	S	S	X	X	X	X	X	S	X	X		X	§ 20.10.010; § 20.10.020; § 20.10.470	
RRO	Restricted Residential Mixed Use Overlay	S	S	S	S	S	S	S	X	S	S	S	S	S	S	X	X	X	X	X	X	X	X	X	X	X	S	X	S	X	S	S	X	X	S	X	X	X		X	§ 20.10.010; § 20.10.020; § 20.10.560	
TDR	Transfer of Development Rights	S	S	S	S	S	S	S	X	S	S	S	S	S	S	S	S	S	S	S	S	S	X	X	S	X	S	S	S	S	S	S	X	X	X	S	S	X	D	S	§ 20.10.010; § 20.10.020; § 20.10.555; § 20.10.385	

X Use not allowed.
P Permitted use.
A Permitted accessory use.
D Detailed site plan approval required.
E Special exception required.
S Special permit required.
Z Master zoning plan required.
** Subject to Section 20.10.360.

**** Subject to Section 20.10.370.

(Ord. No. 17306, § 6, 4-6-2010; Ord. No. 17490, § 5, 1-25-2011; Ord. No. 17532, § 6, 4-19-2011; Ord. No. 17547, § 4, 5-3-2011; Ord. No. 17567, § 2, 5-24-2011; Ord. No. 17577, § 9, 7-7-2011; Ord. No. 17904, § 3, 11-6-2012; Ord. No. 18128, § 2, 7-29-2014; Ord. No. 18244, § 3, 9-16-2014; Ord. No. 18349, § 6, 4-28-2015; Ord. No. 18371, § 1, 6-16-2015; Ord. No. 18531, § 4, 6-28-2016; Ord. No. 19016, § 2(Exh. A), 1-7-2020; Ord. No. 19019, § 3, 1-7-2020; Ord. No. 19059, § 1(Att. A), 5-12-2020; Ord. No. 019517, §§ 2—8, 6-20-2023; Ord. No. 019578, § 6—72, 12-12-2023; Ord. No. 019734, § 2, 5-28-2025)

Appendix B

TABLE OF DENSITY AND DIMENSIONAL STANDARDS

A		SUBPART A	SUBPART B					SUBPART C							SUBPART D
B			Lot & Dwelling Size					Building Setbacks (in feet)							
C	Zoning District	Minimum District Area	Permitted Use (as established in Chapter 20.08)	Minimum Lot Area (square feet)	Minimum Average Lot Width (in feet)	Minimum Lot Depth (in feet)	Other Standards	Minimum Front Yard (in feet)	Minimum Rear Yard (in feet)	Minimum Cumulative Front & Rear Yard Total	Minimum Side Yard (in feet)	Minimum Side Street Yard (in feet)	Minimum Cumulative Side & Side Street Yard Total	Other Standards	Maximum Height Limitation (in feet)
D	R-1	No minimum	Single-family dwelling	20,000	125	150	None	30	30	100	15	20	40	Accessory structures, see Section 20.10.030	35
D.1	R-1	No minimum	Other permitted uses, except as otherwise specified in this title	20,000	100	150	See Chapter 20.10	30	30	100	15	20	40	See Chapter 20.10	35
E	R-2	No minimum	Single-family dwelling	10,000	80	110	None	25	25	60	8	10	20	Accessory structures, see Section 20.10.030	35
E-1	R-2	No minimum	Other permitted uses, except as otherwise specified in this title	20,000	100	150	See Chapter 20.10	25	25	60	8	10	20	See Chapter 20.10	35
F	R-2A	No minimum	Single-family dwelling	8,000	70	100	None	25	25	60	8	10	16	Accessory structures, see Section 20.10.030	35
F.1	R-2A	No minimum	Other permitted uses, except as otherwise specified in this title	20,000	100	150	See Chapter 20.10	25	25	60	8	10	16	See Chapter 20.10	35
G	R-3	No minimum	Single-family dwelling	6,000	60	90	None	20	20	50	5	10	N/A	Accessory structures, see Section 20.10.030	35

A		SUBPART A	SUBPART B					SUBPART C							SUBPART D
B			Lot & Dwelling Size					Building Setbacks (in feet)							
C	Zoning District	Minimum District Area	Permitted Use (as established in Chapter 20.08)	Minimum Lot Area (square feet)	Minimum Average Lot Width (in feet)	Minimum Lot Depth (in feet)	Other Standards	Minimum Front Yard (in feet)	Minimum Rear Yard (in feet)	Minimum Cumulative Front & Rear Yard Total	Minimum Side Yard (in feet)	Minimum Side Street Yard (in feet)	Minimum Cumulative Side & Side Street Yard Total	Other Standards	Maximum Height Limitation (in feet)
G.1	R-3	No minimum	Other permitted uses, except as otherwise specified in this title	20,000	100	150	See Chapter 20.10	20	20	50	5	10	N/A	See Chapter 20.10	35
H	R-3A	No minimum	Single-family dwelling	5,000	50	90	None	15, except that a 20' driveway must be provided	15	45	5	10	N/A	Accessory structures, see Section 20.10.030	35
H.1	R-3A	No minimum	Other permitted uses, except as otherwise specified in this title	20,000	100	150	See Chapter 20.10	15, except that a 20' driveway must be provided	15	45	5	10	N/A	See Chapter 20.10	35
I	R-4	No minimum	Single-family dwelling	6,000	50	90	None	10, except that a 20' driveway must be provided	10	45	5	10	N/A	Accessory structures, see Section 20.10.030	35
I.1	R-4	No minimum	Two-family dwelling	7,000	70	90	None	10, except that a 20' driveway must be provided	10	45	5	10	N/A	Accessory structures, see Section 20.10.030	35

A		SUBPART A	SUBPART B					SUBPART C							SUBPART D
B			Lot & Dwelling Size					Building Setbacks (in feet)							
C	Zoning District	Minimum District Area	Permitted Use (as established in Chapter 20.08)	Minimum Lot Area (square feet)	Minimum Average Lot Width (in feet)	Minimum Lot Depth (in feet)	Other Standards	Minimum Front Yard (in feet)	Minimum Rear Yard (in feet)	Minimum Cumulative Front & Rear Yard Total	Minimum Side Yard (in feet)	Minimum Side Street Yard (in feet)	Minimum Cumulative Side & Side Street Yard Total	Other Standards	Maximum Height Limitation (in feet)
I.2	R-4	No minimum	Other permitted uses, except as otherwise specified in this title	No minimum	No minimum	No minimum	See Chapter 20.10	10, except that a 20' driveway must be provided	10	45	5	10	N/A	See Chapter 20.10	35; except that buildings may increase the height about thirty-five (35) feet if an additional setback of two (2) feet for each one (1) foot of height in excess of thirty-five (35) feet is provided
J	R-5	No minimum	Single-family dwelling	4,500	45	90	None	10, except that a 20' driveway must be provided	10	45	5	10	N/A	Accessory structures, see Section 20.10.030	35
J.1	R-5	No minimum	Two-family dwelling	6,000	50	90	None	10, except that a 20' driveway must be provided	10	45	5	10	N/A	Accessory structures, see Section 20.10.030	35

A		SUBPART A	SUBPART B					SUBPART C							SUBPART D
B			Lot & Dwelling Size					Building Setbacks (in feet)							
C	Zoning District	Minimum District Area	Permitted Use (as established in Chapter 20.08)	Minimum Lot Area (square feet)	Minimum Average Lot Width (in feet)	Minimum Lot Depth (in feet)	Other Standards	Minimum Front Yard (in feet)	Minimum Rear Yard (in feet)	Minimum Cumulative Front & Rear Yard Total	Minimum Side Yard (in feet)	Minimum Side Street Yard (in feet)	Minimum Cumulative Side & Side Street Yard Total	Other Standards	Maximum Height Limitation (in feet)
J.2	R-5	No minimum	Other permitted uses, except as otherwise specified in this title	No minimum	No minimum	No minimum	See Chapter 20.10	10, except that a 20' driveway must be provided	10	45	5	10	N/A	See Chapter 20.10	35; except that buildings may increase the height about thirty-five (35) feet if an additional setback of two (2) feet for each one (1) foot of height in excess of thirty-five (35) feet is provided
K	RMH	4 acres; provided that extensions to an RMH District may be considered in increments of 4 acres or less	Manufactured homes	4,000	40	90	See Development Standards in Section 20.10.540 of this title	20	5	N/A	5	10	N/A	See Development Standards in Section 20.10.540 of this Title	16
K.1	RMH	4 acres; provided that extensions to an RMH District may be considered in increments of 4 acres or less	Other permitted uses, except as otherwise specified in this title	4,000	40	90	See Chapter 20.10	20	5	N/A	5	10	N/A	See Chapter 20.10	35

A		SUBPART A	SUBPART B					SUBPART C							SUBPART D
B			Lot & Dwelling Size					Building Setbacks (in feet)							
C	Zoning District	Minimum District Area	Permitted Use (as established in Chapter 20.08)	Minimum Lot Area (square feet)	Minimum Average Lot Width (in feet)	Minimum Lot Depth (in feet)	Other Standards	Minimum Front Yard (in feet)	Minimum Rear Yard (in feet)	Minimum Cumulative Front & Rear Yard Total	Minimum Side Yard (in feet)	Minimum Side Street Yard (in feet)	Minimum Cumulative Side & Side Street Yard Total	Other Standards	Maximum Height Limitation (in feet)
L	A-1	No minimum	Single-family dwelling	4,000	40	90	None	10, except that a 20' driveway must be provided	15	45	5	10	N/A	Accessory structures, see Section 20.10.030	35
L.1	A-1	No minimum	Two-family dwelling	6,000	50	90	None	10, except that a 20' driveway must be provided	15	45	5	10	N/A	Accessory structures, see Section 20.10.030	35
L.2	A-1	No minimum	Single-family attached dwellings & apartments	24,000	60	100	Minimum lot area of 2,400 sf per unit; open space minimum of 50% for interior lots and 40% for corner lots	20	25	N/A	5	10	N/A	20% of required front yard shall be landscaped; this area may be included in meeting landscape requirements of Title 18	35
L.3	A-1	No minimum	Other permitted uses, except as otherwise specified in this title	4,500	45	90	See Chapter 20.10	20	25	N/A	5	10	N/A	See Chapter 20.10	35
M	A-2	No minimum	Single-family dwelling	3,500	35	90	None	10, except that a 20' driveway must be provided	15	45	5	10	N/A	Accessory structures, see Section 20.10.030	35
M.1	A-2	No minimum	Two-family dwelling	5,000	50	90	None	10, except that a 20' driveway must be provided	15	45	5	10	N/A	Accessory structures, see Section 20.10.030	35

A		SUBPART A	SUBPART B					SUBPART C							SUBPART D
B			Lot & Dwelling Size					Building Setbacks (in feet)							
C	Zoning District	Minimum District Area	Permitted Use (as established in Chapter 20.08)	Minimum Lot Area (square feet)	Minimum Average Lot Width (in feet)	Minimum Lot Depth (in feet)	Other Standards	Minimum Front Yard (in feet)	Minimum Rear Yard (in feet)	Minimum Cumulative Front & Rear Yard Total	Minimum Side Yard (in feet)	Minimum Side Street Yard (in feet)	Minimum Cumulative Side & Side Street Yard Total	Other Standards	Maximum Height Limitation (in feet)
M.2	A-2	No minimum	Single-family attached dwellings & apartments	6,000	50	100	Minimum lot area of 1,750 sf per unit; open space minimum of 50% for interior lots and 40% for corner lots	0	25	N/A	5	10	N/A	N/A	35
M.3	A-2	No minimum	Other permitted uses, except as otherwise specified in this title	4,500	45	90	See Chapter 20.10	20	25	N/A	5	10	N/A	See Chapter 20.10	35
N	A-3	No minimum	Single-family dwelling	2,400	40	60	None	10, except that a 20' driveway must be provided	10	40	4	5	N/A	Accessory structures, see Section 20.10.030	35
N.1	A-3	No minimum	Two-family dwelling	4,000	50	80	None	10, except that a 20' driveway must be provided	10	40	4	5	N/A	Accessory structures, see Section 20.10.030	35

A		SUBPART A	SUBPART B					SUBPART C							SUBPART D
B			Lot & Dwelling Size					Building Setbacks (in feet)							
C	Zoning District	Minimum District Area	Permitted Use (as established in Chapter 20.08)	Minimum Lot Area (square feet)	Minimum Average Lot Width (in feet)	Minimum Lot Depth (in feet)	Other Standards	Minimum Front Yard (in feet)	Minimum Rear Yard (in feet)	Minimum Cumulative Front & Rear Yard Total	Minimum Side Yard (in feet)	Minimum Side Street Yard (in feet)	Minimum Cumulative Side & Side Street Yard Total	Other Standards	Maximum Height Limitation (in feet)
N.2	A-3	No minimum	Single-family attached dwellings & apartments	4,000	50	80	Minimum lot area of 750 sf per unit; except for buildings 3 stories or more in height, minimum lot area of 500 sf per unit is required; minimum open space of 40% of interior lots and 30% of corner lots	0	20	N/A	4	5	N/A	N/A	35; buildings may exceed thirty-five (35) feet if an additional setback of two (2) feet for each one (1) foot of height in excess of thirty-five (35) feet is provided
N.3	A-3	No minimum	Other permitted uses, except as otherwise specified in this title	2,400	40	60	See Chapter 20.10	20	25	N/A	15	20	N/A	See Chapter 20.10	35; buildings may exceed thirty-five (35) feet if an additional setback of two (2) feet for each one (1) foot of height in excess of thirty-five (35) feet is provided
O	A-4	No minimum	Single-family dwelling	2,400	40	60	None	10, except that a 20' driveway must be provided	10	40	4	5	N/A	Accessory structures, see Section 20.10.030	35

A		SUBPART A	SUBPART B					SUBPART C							SUBPART D
B			Lot & Dwelling Size					Building Setbacks (in feet)							
C	Zoning District	Minimum District Area	Permitted Use (as established in Chapter 20.08)	Minimum Lot Area (square feet)	Minimum Average Lot Width (in feet)	Minimum Lot Depth (in feet)	Other Standards	Minimum Front Yard (in feet)	Minimum Rear Yard (in feet)	Minimum Cumulative Front & Rear Yard Total	Minimum Side Yard (in feet)	Minimum Side Street Yard (in feet)	Minimum Cumulative Side & Side Street Yard Total	Other Standards	Maximum Height Limitation (in feet)
O.1	A-4	No minimum	Two-family dwelling	4,000	50	80	None	10, except that a 20' driveway must be provided	10	40	4	5	N/A	Accessory structures, see Section 20.10.030	35
O.2	A-4	No minimum	Single-family attached dwellings & apartments	20,000	100	100	Multi-family: minimum floor area of 300 sf per dwelling unit	0	20	N/A	4	10	N/A	Perimeter designed to ensure compatibility with adjacent development thru the use of setbacks, screening walls or landscaping; minimum setback of 10 feet between any structure and adjoining ROW	Per approved site development plan

A		SUBPART A	SUBPART B					SUBPART C							SUBPART D
B			Lot & Dwelling Size					Building Setbacks (in feet)							
C	Zoning District	Minimum District Area	Permitted Use (as established in Chapter 20.08)	Minimum Lot Area (square feet)	Minimum Average Lot Width (in feet)	Minimum Lot Depth (in feet)	Other Standards	Minimum Front Yard (in feet)	Minimum Rear Yard (in feet)	Minimum Cumulative Front & Rear Yard Total	Minimum Side Yard (in feet)	Minimum Side Street Yard (in feet)	Minimum Cumulative Side & Side Street Yard Total	Other Standards	Maximum Height Limitation (in feet)
O.3	A-4	No minimum	Other permitted uses, except as otherwise specified in this title	20,000	100	100	See Chapter 20.10; mixed-use developments shall be designed in a manner that separates the residential and non-residential uses	20	25	N/A	5	10	N/A	Perimeter designed to ensure compatibility with adjacent development thru the use of setbacks, screening walls or landscaping; minimum setback of 10 feet between any structure and adjoining ROW	Per approved site development plan
P	A-0	No minimum	Single-family dwelling	4,000	40	90	None	10, except that a 20' driveway must be provided	10	45	5	10	N/A	Accessory structures, see Section 20.10.030	Max height equal to the distance between the centerline of abutting street and face of the building abutting that street.
P.1	A-0	No minimum	Two-family dwelling	6,000	50	90	None	10, except that a 20' driveway must be provided	10	45	5	10	N/A	Accessory structures, see Section 20.10.030	Max height equal to the distance between the centerline of abutting street and face of the building abutting that street.

A		SUBPART A	SUBPART B					SUBPART C							SUBPART D
B			Lot & Dwelling Size					Building Setbacks (in feet)							
C	Zoning District	Minimum District Area	Permitted Use (as established in Chapter 20.08)	Minimum Lot Area (square feet)	Minimum Average Lot Width (in feet)	Minimum Lot Depth (in feet)	Other Standards	Minimum Front Yard (in feet)	Minimum Rear Yard (in feet)	Minimum Cumulative Front & Rear Yard Total	Minimum Side Yard (in feet)	Minimum Side Street Yard (in feet)	Minimum Cumulative Side & Side Street Yard Total	Other Standards	Maximum Height Limitation (in feet)
P.2	A-0	No minimum	Single-family attached dwellings & apartments	6,000	50	100	Minimum lot area of 750 sf per dwelling unit; lot coverage not to exceed 50%	0	25	N/A	5	10	N/A	N/A	Max height equal to the distance between the centerline of abutting street and face of the building abutting that street.
P.3	A-0	No minimum	Other permitted uses, except as otherwise specified in this title	6,000	50	90	See Chapter 20.10	0	5	N/A	5	10	N/A	See Chapter 20.10	Max height equal to the distance between the centerline of abutting street and face of the building abutting that street.
Q	A-3/0	No minimum	Churches	N/A	150	200	N/A	20	10	N/A	5	10	N/A	N/A	Max height equal to the distance between the centerline of abutting street and face of the building abutting that street; above 60' in height an additional setback of I' is required from all yard lines per 2' of height above 60'.

A		SUBPART A	SUBPART B					SUBPART C							SUBPART D
B			Lot & Dwelling Size					Building Setbacks (in feet)							
C	Zoning District	Minimum District Area	Permitted Use (as established in Chapter 20.08)	Minimum Lot Area (square feet)	Minimum Average Lot Width (in feet)	Minimum Lot Depth (in feet)	Other Standards	Minimum Front Yard (in feet)	Minimum Rear Yard (in feet)	Minimum Cumulative Front & Rear Yard Total	Minimum Side Yard (in feet)	Minimum Side Street Yard (in feet)	Minimum Cumulative Side & Side Street Yard Total	Other Standards	Maximum Height Limitation (in feet)
Q.1	A-3/0	No minimum	Other permitted uses, except as otherwise specified in this title	6,000	50	N/A	Minimum lot area of 750 sf per dwelling unit; unless 3 or more stories, then minimum lot area of 500 sf per dwelling unit; open space requirement of 40% of the lot area of an interior lot and 30% of a corner lot	0	10	N/A	5	10	N/A	See Chapter 20.10	Max height equal to the distance between the centerline of abutting street and face of the building abutting that street; above 60' in height an additional setback of I' is required from all yard lines per 2' of height above 60'.
R	A-M	No minimum	Single-family dwelling	4,500	45	90	None	10, except that a 20' driveway must be provided	10	45	5	10	N/A	Accessory structures, see Section 20.10.030	35
R.1	A-M	No minimum	Two-family dwelling	6,000	50	90	None	10, except that a 20' driveway must be provided	10	45	5	10	N/A	Accessory structures, see Section 20.10.030	35
R.2	A-M	No minimum	Apartments	6,000	50	100	Minimum lot area of 1,750 sf per unit; open space minimum of 50% for interior lots and 40% for corner lots	20	25	N/A	5	10	N/A	See Development Standards in Section 20.10.380 of this Title	35

A		SUBPART A	SUBPART B					SUBPART C							SUBPART D
B			Lot & Dwelling Size					Building Setbacks (in feet)							
C	Zoning District	Minimum District Area	Permitted Use (as established in Chapter 20.08)	Minimum Lot Area (square feet)	Minimum Average Lot Width (in feet)	Minimum Lot Depth (in feet)	Other Standards	Minimum Front Yard (in feet)	Minimum Rear Yard (in feet)	Minimum Cumulative Front & Rear Yard Total	Minimum Side Yard (in feet)	Minimum Side Street Yard (in feet)	Minimum Cumulative Side & Side Street Yard Total	Other Standards	Maximum Height Limitation (in feet)
R.3	A-M	No minimum	Manufactured home park	20.000	100	200	See Development Standards in Section 20.10.340 of this title	20	25	N/A	5	10	N/A	See Development Standards in Section 20.10.340 of this Title	Maximum height for manufactured homes 16', all other buildings 35'
R.4	A-M	No minimum	Other permitted uses, except as otherwise specified in this title	6,000	60	100	See Chapter 20.10	20	25	N/A	5	10	N/A	See Chapter 20.10	35
S	COP	No minimum	All uses	20,000	150	100	Each site shall have a minimum street frontage of 150 feet along a street with adequate capacity to serve the proposed project, except that lots abutting a cul de sac or turning heel shall have a minimum average lot width of 150 feet	20	5	N/A	5	10	N/A	Required front yards shall be landscaped except for necessary walks and drives; this area may be included in meeting landscape requirements of Title 18	35; may exceed 35 feet when an additional setback of one foot is provided from all adjacent yardlines for each foot of height in excess of 35.

Appendix B

TABLE OF DENSITY AND DIMENSIONAL STANDARDS

A		SUBPART A	SUBPART B					SUBPART C							SUBPART D
B			Lot & Dwelling Size					Building Setbacks (in feet)							
C	Zoning District	Minimum District Area	Permitted Use (as established in Chapter 20.08)	Minimum Lot Area (square feet)	Minimum Average Lot Width (in feet)	Minimum Lot Depth (in feet)	Other Standards	Minimum Front Yard (in feet)	Minimum Rear Yard (in feet)	Minimum Cumulative Front & Rear Yard Total	Minimum Side Yard (in feet)	Minimum Side Street Yard (in feet)	Minimum Cumulative Side & Side Street Yard Total	Other Standards	Maximum Height Limitation (in feet)
T	C-1	No minimum	Apartments	1,500 per dwelling unit	N/A	N/A	Maximum of 29 units per acre	0	25	N/A	5	10	N/A	See Development Standards in Section 20.10.380 of this Title	35; may exceed 35 feet when an additional setback of one foot is provided from all adjacent yardlines for each foot of height in excess of 35.
T.1	C-1	No minimum	Other permitted uses, except as otherwise specified in this title	N/A	N/A	N/A	See Chapter 20.10	0	10	N/A	10 when abutting a residential or apartment district	10	N/A	See Chapter 20.10	35; may exceed 35 feet when an additional setback of one foot is provided from all adjacent yardlines for each foot of height in excess of 35.
U	C-2	No minimum	Apartments	1,500 per dwelling unit	N/A	N/A	Maximum of 29 units per acre	0	25	N/A	5	10	N/A	See Development Standards in Section 20.10.380 of this Title	35; may exceed 35 ft when an additional setback of one foot is provided from all adjacent yardlines for each foot of height in excess of 35.

A		SUBPART A	SUBPART B					SUBPART C							SUBPART D
B			Lot & Dwelling Size					Building Setbacks (in feet)							
C	Zoning District	Minimum District Area	Permitted Use (as established in Chapter 20.08)	Minimum Lot Area (square feet)	Minimum Average Lot Width (in feet)	Minimum Lot Depth (in feet)	Other Standards	Minimum Front Yard (in feet)	Minimum Rear Yard (in feet)	Minimum Cumulative Front & Rear Yard Total	Minimum Side Yard (in feet)	Minimum Side Street Yard (in feet)	Minimum Cumulative Side & Side Street Yard Total	Other Standards	Maximum Height Limitation (in feet)
U.1	C-2	No minimum	Self-storage warehouse	Minimum site of 2 acres, unless abutting & adjacent to a minimum of 4 acres zoned commercial, then the minimum shall be 1 acre	200	200	See Development Standards in Section 20.10.610 of this title	15	20	N/A	10 when abutting a residential or apartment district	10	N/A	See Development Standards in Section 20.10.610 of this Title	See Development Standards in Section 20.10.610 of this Title
U.2	C-2	No minimum	Other permitted uses, except as otherwise specified in this title	N/A	N/A	N/A	See Chapter 20.10	0	20	N/A	10 when abutting a residential or apartment district	10	N/A	See Chapter 20.10	35; may exceed 35 ft when an additional setback of one foot is provided from all adjacent yardlines for each foot of height in excess of 35.
V	C-3	No minimum	Apartments	1,500 per dwelling unit	N/A	N/A	Maximum of 29 units per acre	0	25	N/A	5	10	N/A	See Development Standards in Section 20.10.380 of this Title	35; may exceed 35 ft when an additional setback of one foot is provided from all adjacent yardlines for each foot of height in excess of 35.

A		SUBPART A	SUBPART B					SUBPART C							SUBPART D
B			Lot & Dwelling Size					Building Setbacks (in feet)							
C	Zoning District	Minimum District Area	Permitted Use (as established in Chapter 20.08)	Minimum Lot Area (square feet)	Minimum Average Lot Width (in feet)	Minimum Lot Depth (in feet)	Other Standards	Minimum Front Yard (in feet)	Minimum Rear Yard (in feet)	Minimum Cumulative Front & Rear Yard Total	Minimum Side Yard (in feet)	Minimum Side Street Yard (in feet)	Minimum Cumulative Side & Side Street Yard Total	Other Standards	Maximum Height Limitation (in feet)
V.1	C-3	No minimum	Self-storage warehouse	Minimum site of 2 acres, unless abutting & adjacent to a minimum of 4 acres zoned commercial, then the minimum shall be 1 acre	200	200	See Development Standards in Section 20.10.610 of this title	15	20	N/A	10 when abutting a residential or apartment district	10	N/A	See Development Standards in Section 20.10.610 of this Title	See Development Standards in Section 20.10.610 of this Title
V.2	C-3	No minimum	Manufactured home park	30,000	N/A	N/A	See Development Standards in Section 20.10.340 of this title	15	10	N/A	10 when abutting a residential or apartment district	10	N/A	See Development Standards in Section 20.10.340 of this Title	See Development Standards in Section 20.10.340 of this Title
V.3	C-3	No minimum	Other permitted uses, except as otherwise specified in this title	N/A	N/A	N/A	See Chapter 20.10	0	10	N/A	10 when abutting a residential or apartment district	10	N/A	See Chapter 20.10	35; may exceed 35 ft when an additional setback of one foot is provided from all adjacent yardlines for each foot of height in excess of 35.

A		SUBPART A	SUBPART B					SUBPART C							SUBPART D
B			Lot & Dwelling Size					Building Setbacks (in feet)							
C	Zoning District	Minimum District Area	Permitted Use (as established in Chapter 20.08)	Minimum Lot Area (square feet)	Minimum Average Lot Width (in feet)	Minimum Lot Depth (in feet)	Other Standards	Minimum Front Yard (in feet)	Minimum Rear Yard (in feet)	Minimum Cumulative Front & Rear Yard Total	Minimum Side Yard (in feet)	Minimum Side Street Yard (in feet)	Minimum Cumulative Side & Side Street Yard Total	Other Standards	Maximum Height Limitation (in feet)
W	C-4	No minimum	Apartments	Minimum site area of 4,000 sf	50	N/A	Minimum lot area of 750 sf per dwelling unit; unless 3 or more stories, then minimum lot area of 500 sf per dwelling unit	0	25	N/A	5	10	N/A	See Development Standards in Section 20.10.380 of this title	60; may exceed 60' when an additional setback of one foot is provided from all adjacent yardlines for each foot of height in excess of 60.
W.1	C-4	No minimum	Manufactured home parks	30,000	N/A	N/A	See Development Standards in Section 20.10.340 of this title	15	10	N/A	10 when abutting a residential or apartment district	10	N/A	See Development Standards in Section 20.10.340 of this title	See Development Standards in Section 20.10.340 of this title
W.2	C-4	No minimum	Other permitted uses, except as otherwise specified in this title	N/A	N/A	N/A	See Chapter 20.10	0	10	N/A	10 when abutting a residential or apartment district	10	N/A	See Chapter 20.10; Floor area ratio of 1.5	60; may exceed 60' when an additional setback of one foot is provided from all adjacent yardlines for each foot of height in excess of 60.
X	C-5	No minimum	Apartments	Minimum site area of 4000 sf	50	N/A	Each apartment dwelling unit shall have a minimum of 400 sf	0	0	N/A	0	0	N/A	See Development Standards in Section 20.10.380 of this title	N/A

A		SUBPART A	SUBPART B				SUBPART C							SUBPART D
B			Lot & Dwelling Size				Building Setbacks (in feet)							
C	Zoning District	Minimum District Area	Permitted Use (as established in Chapter 20.08)	Minimum Lot Area (square feet)	Minimum Average Lot Width (in feet)	Minimum Lot Depth (in feet)	Other Standards	Minimum Front Yard (in feet)	Minimum Rear Yard (in feet)	Minimum Cumulative Front & Rear Yard Total	Minimum Side Yard (in feet)	Minimum Side Street Yard (in feet)	Minimum Cumulative Side & Side Street Yard Total	Other Standards	Maximum Height Limitation (in feet)
X.1	C-5	No minimum	Other permitted uses, except as otherwise specified in this title	N/A	N/A	N/A	See Chapter 20.10	0	0	N/A	0	0	N/A	See Chapter 20.10	N/A

A		SUBPART A	SUBPART B					SUBPART C						SUBPART D	
B			Lot & Dwelling Size					Building Setbacks (in feet)							
C	Zoning District	Minimum District Area	Permitted Use (as established in Chapter 20.08)	Minimum Lot Area (square feet)	Minimum Average Lot Width (in feet)	Minimum Lot Depth (in feet)	Other Standards	Minimum Front Yard (in feet)	Minimum Rear Yard (in feet)	Minimum Cumulative Front & Rear Yard Total	Minimum Side Yard (in feet)	Minimum Side Street Yard (in feet)	Minimum Cumulative Side & Side Street Yard Total	Other Standards	Maximum Height Limitation (in feet)
Y	Q	5 acres; extensions to the district from a common boundary may be considered in increments of 5 acres or less	Extraction operations	N/A	N/A	N/A	See Development Standards in Section 20.10.500 of this title	100	100	N/A	100	100	N/A	See Development Standards in Section 20.10.500 of this title	N/A
Y.1	Q	5 acres; extensions to the district from a common boundary may be considered in increments of 5 acres or less	Accessory uses	N/A	N/A	N/A	See Development Standards in Section 20.10.500 of this title	25	25	N/A	25	25	N/A	See Development Standards in Section 20.10.500 of this title	N/A

A		SUBPART A	SUBPART B					SUBPART C							SUBPART D
B			Lot & Dwelling Size					Building Setbacks (in feet)							
C	Zoning District	Minimum District Area	Permitted Use (as established in Chapter 20.08)	Minimum Lot Area (square feet)	Minimum Average Lot Width (in feet)	Minimum Lot Depth (in feet)	Other Standards	Minimum Front Yard (in feet)	Minimum Rear Yard (in feet)	Minimum Cumulative Front & Rear Yard Total	Minimum Side Yard (in feet)	Minimum Side Street Yard (in feet)	Minimum Cumulative Side & Side Street Yard Total	Other Standards	Maximum Height Limitation (in feet)
Z	M-1/ M-2/ M-3	No minimum	All uses, except as otherwise specified in this title	N/A	N/A	N/A	See Chapter 20.10	15	10	N/A	10 when abutting a residential or apartment district	10	N/A	See Chapter 20.10; Floor area ratio of 1.0	60; may exceed 60' when an additional setback of one foot is provided from all adjacent yardlines for each foot of height in excess of 60.
AA	R-F	None	Single-family dwelling	1 acre	125	200	Secondary Manufactured home, see Section 20.10.600	50	50	N/A	20	25	N/A	Accessory structures, see Section 20.10.030	35

A		SUBPART A	SUBPART B					SUBPART C							SUBPART D
B				Lot & Dwelling Size				Building Setbacks (in feet)							
C	Zoning District	Minimum District Area	Permitted Use (as established in Chapter 20.08)	Minimum Lot Area (square feet)	Minimum Average Lot Width (in feet)	Minimum Lot Depth (in feet)	Other Standards	Minimum Front Yard (in feet)	Minimum Rear Yard (in feet)	Minimum Cumulative Front & Rear Yard Total	Minimum Side Yard (in feet)	Minimum Side Street Yard (in feet)	Minimum Cumulative Side & Side Street Yard Total	Other Standards	Maximum Height Limitation (in feet)
AA.1	R-F	None	Nursery, greenhouse, raising or harvesting field (tree or bush crops), poultry, pasturage	5 acres	125	200	See Chapter 20.10 and Title 7	50	50	N/A	20	25	N/A	No structure shall be located closer than fifty (50) feet from any major arterial right-of-way as shown on the City's major thoroughfare plan	35

A		SUBPART A	SUBPART B					SUBPART C							SUBPART D
B			Lot & Dwelling Size					Building Setbacks (in feet)							
C	Zoning District	Minimum District Area	Permitted Use (as established in Chapter 20.08)	Minimum Lot Area (square feet)	Minimum Average Lot Width (in feet)	Minimum Lot Depth (in feet)	Other Standards	Minimum Front Yard (in feet)	Minimum Rear Yard (in feet)	Minimum Cumulative Front & Rear Yard Total	Minimum Side Yard (in feet)	Minimum Side Street Yard (in feet)	Minimum Cumulative Side & Side Street Yard Total	Other Standards	Maximum Height Limitation (in feet)
AA.2	R-F	None	Small or large animal veterinary hospital or clinic	1 acre	100	150	See Chapter 20.10 and Title 7	50	50	N/A	20	25	N/A	No structure shall be located closer than fifty (50) feet from any major arterial right-of-way as shown on the City's major thoroughfare plan	35

A		SUBPART A	SUBPART B					SUBPART C							SUBPART D
B			Lot & Dwelling Size					Building Setbacks (in feet)							
C	Zoning District	Minimum District Area	Permitted Use (as established in Chapter 20.08)	Minimum Lot Area (square feet)	Minimum Average Lot Width (in feet)	Minimum Lot Depth (in feet)	Other Standards	Minimum Front Yard (in feet)	Minimum Rear Yard (in feet)	Minimum Cumulative Front & Rear Yard Total	Minimum Side Yard (in feet)	Minimum Side Street Yard (in feet)	Minimum Cumulative Side & Side Street Yard Total	Other Standards	Maximum Height Limitation (in feet)
AA.3	R-F	None	Kennels & animal training establishments	6 acres	125	200	See Chapter 20.10 and Title 7	50	50	N/A	20	25	N/A	No structure shall be located closer than fifty (50) feet from any major arterial right-of-way as shown on the City's major thoroughfare plan	35

A		SUBPART A	SUBPART B					SUBPART C							SUBPART D
B			*Lot & Dwelling Size*					Building Setbacks (in feet)							
C	Zoning District	Minimum District Area	Permitted Use (as established in Chapter 20.08)	Minimum Lot Area (square feet)	Minimum Average Lot Width (in feet)	Minimum Lot Depth (in feet)	Other Standards	Minimum Front Yard (in feet)	Minimum Rear Yard (in feet)	Minimum Cumulative Front & Rear Yard Total	Minimum Side Yard (in feet)	Minimum Side Street Yard (in feet)	Minimum Cumulative Side & Side Street Yard Total	Other Standards	Maximum Height Limitation (in feet)
AA.4	R-F	None	Feeder lots	20 acres	125	200	See Chapter 20.10 and Title 7	50	50	N/A	20	25	N/A	No structure shall be located closer than fifty (50) feet from any major arterial right-of-way as shown on the City's major thoroughfare plan	35
AA.5	R-F	None	Other permitted uses, except as otherwise specified in this title	1 acre	125	200	See Chapter 20.10	50	50	N/A	20	25	N/A	See Chapter 20.10	35

A	SUBPART A	SUBPART B					SUBPART C						SUBPART D
B		Lot & Dwelling Size					Building Setbacks (in feet)						
C	Zoning District	Minimum District Area	Permitted Use (as established in Chapter 20.08)	Minimum Lot Area (square feet)	Minimum Average Lot Width (in feet)	Minimum Lot Depth (in feet)	Other Standards	Minimum Front Yard (in feet)	Minimum Rear Yard (in feet)	Minimum Cumulative Front & Rear Yard Total	Minimum Side Yard (in feet)	Minimum Side Street Yard (in feet)	Minimum Cumulative Side & Side Street Yard Total	Other Standards	Maximum Height Limitation (in feet)
BB	PMD	1 acre where common or public open space is dedicated; provided that extensions of 1 acre or less to an existing PMD from a common boundary may be considered	All Uses; maximum density per gross acre is determined on a percent average slope basis of the property (see Section 20.10.370 of this title)	No minimum; except where private open space is proposed, a minimum lot area of one-half (1/2) acre for single & two-family dwellings	None	None	See Section 20.10.370 of this title	10, for single family detached dwellings where common open space is provided; or as approved on detailed site development plan	10, for single family detached dwellings where common open space is provided, or as otherwise approved on detailed site development plan	N/A	5, for single family detached dwellings where common open space is provided, or as otherwise approved on detailed site development plan	10, for single family detached dwellings where common open space is provided; or as otherwise approved on detailed site development plan	10' between detached structures, plus 2 additional feet of separation for each story over 2; minimum 10' setback for all structures abutting public or private ROW; except that a 20' driveway is required	See Chapter 20.10	35; measured from the lowest living area floor level & *shall not* exceed 35 from the highest elevation of the lot, or as approved by City Council where it can be demonstrated that the additional height will not have a detrimental effect on *surrounding* land uses

A		SUBPART A	SUBPART B					SUBPART C							SUBPART D
B			Lot & Dwelling Size					Building Setbacks (in feet)							
C	Zoning District	Minimum District Area	Permitted Use (as established in Chapter 20.08)	Minimum Lot Area (square feet)	Minimum Average Lot Width (in feet)	Minimum Lot Depth (in feet)	Other Standards	Minimum Front Yard (in feet)	Minimum Rear Yard (in feet)	Minimum Cumulative Front & Rear Yard Total	Minimum Side Yard (in feet)	Minimum Side Street Yard (in feet)	Minimum Cumulative Side & Side Street Yard Total	Other Standards	Maximum Height Limitation (in feet)
CC	S-D	1 acre (City Council may designate sites of less than one acre)	Single-family detached	4,000	40	100	See Section 20.10.360 of this title; reduced lot sizes may be requested thru approval of a site development plan	10, except that a 20' driveway must be provided	10	N/A	10 feet between structures	10	N/A	See Section 20.10.360 of this title; reduced setbacks may be requested thru approval of a site development plan	45; except in developments of more than 25 acres or as approved by City Council
CC.1	S-D	1 acre (City Council may designate sites of less than one acre)	Other permitted uses, except as otherwise specified in this title	N/A	N/A	N/A	Max of 20 dwelling units per acre	20	10	N/A	10 feet between structures	10	N/A	See Section 20.10.360 of this title; reduced setbacks may be requested thru approval of a site development plan	45; except in developments of more than 25 acres or as approved by City Council

A		SUB-PART A	SUBPART B					SUBPART C							SUBPART D
B			Lot & Dwelling Size					Building Setbacks (in feet)							
C	Zoning District	Minimum District Area	Permitted Use (as established in Chapter 20.08)	Minimum Lot Area (square feet)	Minimum Average Lot Width (in feet)	Minimum Lot Depth (in feet)	Other Standards	Minimum Front Yard (in feet)	Minimum Rear Yard (in feet)	Minimum Cumulative Front & Rear Yard Total	Minimum Side Yard (in feet)	Minimum Side Street Yard (in feet)	Minimum Cumulative Side & Side Street Yard Total	Other Standards	Maximum Height Limitation (in feet)
DD	U-P	See Development Standards in Section 20.10.360 of this title	Single-family detached & attached, two-family	N/A	N/A	N/A	See Development Standards in Section 20.10.360 of this title	0	0	N/A	0	0	N/A	Accessory structures, see Section 20.10.030	See Development Standards in Section 20.10.360 of this title
DD.1	U-P	See Development Standards in Section 20.10.360 of this Title	Apartments	No minimum	N/A	N/A	See Development Standards in Section 20.10.360 of this title	0	0	N/A	0	0	N/A	See Development Standards in Section 20.10.360 of this title	See Development Standards in Section 20.10.360 of this title
DD.2	U-P	See Development Standards in Section 20.10.360 of this title	Residential/ commercial mixed-use	No minimum	No minimum	N/A	See Development Standards in Section 20.10.360 of this title	0	0	N/A	0	0	N/A	See Chapter 20.10	See Development Standards in Section 20.10.360 of this title
DD.3	U-P	See Development Standards in Section 20.10.360 of this title	Church	No minimum	No minimum	No minimum	See Development Standards in Section 20.10.360 of this title	0	0	N/A	0	0	N/A	N/A	See Development Standards in Section 20.10.360 of this title

A		SUB-PART A	SUBPART B					SUBPART C							SUBPART D
B			Lot & Dwelling Size					Building Setbacks (in feet)							
C	Zoning District	Minimum District Area	Permitted Use (as established in Chapter 20.08)	Minimum Lot Area (square feet)	Minimum Average Lot Width (in feet)	Minimum Lot Depth (in feet)	Other Standards	Minimum Front Yard (in feet)	Minimum Rear Yard (in feet)	Minimum Cumulative Front & Rear Yard Total	Minimum Side Yard (in feet)	Minimum Side Street Yard (in feet)	Minimum Cumulative Side & Side Street Yard Total	Other Standards	Maximum Height Limitation (in feet)
DD.4	U-P	See Development Standards in Section 20.10.360 of this title	Performing arts center	No minimum	No minimum	No minimum	See Development Standards in Section 20.10.360 of this title	0	0	N/A	0	0	N/A	N/A	90
DD.5	U-P	See Development Standards in Section 20.10.360 of this title	Sports area (multi-purpose)	No minimum	No minimum	No minimum	See Development Standards in Section 20.10.360 of this title	0	0	N/A	0	0	N/A	N/A	90
EE	P-R I	1 acre; extensions to the original district from a common boundary may be considered in increments of 1 acre or less.	Single-family detached	4,000	40	100	Maximum of 7 units per acre; lot size may be reduced by site development plan; see Development Standards in Section 20.10.360	10, except that a 20' driveway must be provided	10	N/A	10 between structures	10	N/A	See Section 20.10.360 of this title; setbacks may be reduced if approved on site development plan	35; except as approved by City Council

A		SUB-PART A	SUBPART B					SUBPART C							SUBPART D
B			Lot & Dwelling Size					Building Setbacks (in feet)							
C	Zoning District	Minimum District Area	Permitted Use (as established in Chapter 20.08)	Minimum Lot Area (square feet)	Minimum Average Lot Width (in feet)	Minimum Lot Depth (in feet)	Other Standards	Minimum Front Yard (in feet)	Minimum Rear Yard (in feet)	Minimum Cumulative Front & Rear Yard Total	Minimum Side Yard (in feet)	Minimum Side Street Yard (in feet)	Minimum Cumulative Side & Side Street Yard Total	Other Standards	Maximum Height Limitation (in feet)
EE1	P-R I	1 acre; extensions to the original district from a common boundary may be considered in increments of 1 acre or less.	Other permitted uses, except as otherwise specified in this title	As approved on site development plan	As approved on site development plan	As approved on site development plan	Maximum of 7 units per acre; see Development Standards in Section 20.10.360	As approved on site development plan	As approved on site development plan	N/A	10 between structures	As approved on site development plan	N/A	See Section 20.10.360 of this title; setbacks determined by site development plan	35; except as approved by City Council
FF	P-R II	1 acre; extensions to the original district from a common boundary may be considered in increments of 1 acre or less.	Single-family detached	4,000	40	100	Maximum of 14 units per acre; lot size maybe reduced by site development plan; see Development Standards in Section 20.10.360	10, except that a 20' driveway must be provided	20	N/A	10 between structures	10	N/A	See Section 20.10.360 of this title; setbacks may be reduced if approved on site development plan	35; except as approved by City Council

A		SUBPART A	SUBPART B					SUBPART C							SUBPART D
B			Lot & Dwelling Size					Building Setbacks (in feet)							
C	Zoning District	Minimum District Area	Permitted Use (as established in Chapter 20.08)	Minimum Lot Area (square feet)	Minimum Average Lot Width (in feet)	Minimum Lot Depth (in feet)	Other Standards	Minimum Front Yard (in feet)	Minimum Rear Yard (in feet)	Minimum Cumulative Front & Rear Yard Total	Minimum Side Yard (in feet)	Minimum Side Street Yard (in feet)	Minimum Cumulative Side & Side Street Yard Total	Other Standards	Maximum Height Limitation (in feet)
FF.1	P-R II	1 acre; extensions to the original district from a common boundary may be considered in increments of 1 acre or less.	Other permitted uses, except as otherwise specified in this title	As approved on site development plan	As approved on site development plan	As approved on site development plan	Maximum of 14 units per acre; see Development Standards in Section 20.10.360	As approved on site development plan	As approved on site development plan	N/A	10 between structures	As approved on site development plan	N/A	See Section 20.10.360 of this title; setbacks determined by site development plan	35; except as approved by City Council
GG	P-C	No minimum	Neighborhood shopping center	As approved on site development plan	As approved on site development plan	As approved on site development plan	See Development Standards in Section 20.10.360 of this title	10	10	N/A	10	10	N/A	Principal access shall be from collector or arterial streets. No access from a residential street.	25

A		SUBPART A	SUBPART B					SUBPART C							SUBPART D
B			Lot & Dwelling Size					Building Setbacks (in feet)							
C	Zoning District	Minimum District Area	Permitted Use (as established in Chapter 20.08)	Minimum Lot Area (square feet)	Minimum Average Lot Width (in feet)	Minimum Lot Depth (in feet)	Other Standards	Minimum Front Yard (in feet)	Minimum Rear Yard (in feet)	Minimum Cumulative Front & Rear Yard Total	Minimum Side Yard (in feet)	Minimum Side Street Yard (in feet)	Minimum Cumulative Side & Side Street Yard Total	Other Standards	Maximum Height Limitation (in feet)
GG.1	P-C	No minimum	Community shopping center	As approved on site development plan	As approved on site development plan	As approved on site development plan	See Development Standards in Section 20.10.360 of this title	10	10	N/A	10	10	N/A	Principal access shall be from collector or arterial streets. No access from a residential street.	45
GG.2	P-C	No minimum	Regional shopping center	As approved on site development plan	As approved on site development plan	As approved on site development plan	See Development Standards in Section 20.10.360 of this title	10	10	N/A	10	10	N/A	Principal access shall be from collector or arterial streets. No access from a residential street.	100' or 8 stories, provided any building over 45' is located at least 300' from any residential or apartment district where the height limit is less than 100'

A		SUBPART A	SUBPART B					SUBPART C							SUBPART D
B			Lot & Dwelling Size					Building Setbacks (in feet)							
C	Zoning District	Minimum District Area	Permitted Use (as established in Chapter 20.08)	Minimum Lot Area (square feet)	Minimum Average Lot Width (in feet)	Minimum Lot Depth (in feet)	Other Standards	Minimum Front Yard (in feet)	Minimum Rear Yard (in feet)	Minimum Cumulative Front & Rear Yard Total	Minimum Side Yard (in feet)	Minimum Side Street Yard (in feet)	Minimum Cumulative Side & Side Street Yard Total	Other Standards	Maximum Height Limitation (in feet)
GG.3	P-C	No minimum	Other permitted uses, except as otherwise specified in this title	As approved on site development plan	As approved on site development plan	As approved on site development plan	See Development Standards in Section 20.10.360 of this title	10	10	N/A	10	10	N/A	See Chapter 20.10	Per approved site development plan
HH	P-I	No minimum	All Uses, except as otherwise specified in this title	12,000	80	150	Floor area ratio not to exceed 50%; see Chapter 20.10	15	10, except that all structures shall be a minimum of 25 ft. from an abutting residential or apartment district	N/A	0, except that all structures shall be a minimum of 25 ft. from an abutting residential or apartment district	10	N/A	Where a P-I tract abuts railroad property containing a spur track on the rear or side property line, structures may extend to the property line for the purpose of receiving railroad service.	No building shall exceed 40', not including machinery rooms, spires, antennas, etc.

A		SUBPART A	SUBPART B					SUBPART C							SUBPART D
B			Lot & Dwelling Size					Building Setbacks (in feet)							
C	Zoning District	Minimum District Area	Permitted Use (as established in Chapter 20.08)	Minimum Lot Area (square feet)	Minimum Average Lot Width (in feet)	Minimum Lot Depth (in feet)	Other Standards	Minimum Front Yard (in feet)	Minimum Rear Yard (in feet)	Minimum Cumulative Front & Rear Yard Total	Minimum Side Yard (in feet)	Minimum Side Street Yard (in feet)	Minimum Cumulative Side & Side Street Yard Total	Other Standards	Maximum Height Limitation (in feet)
II	SRR	1,000 sf	Single-family attached & detached	1,000	N/A	N/A	See Development Standards in Section 20.10.360 of this title	0' when abutting more than 50 ft. street ROW; 20' when abutting 50 ft. or less street ROW	0' when abutting a dedicated alley; 20' when not abutting an alley	N/A	5	5	N/A	Reduction in side yard setbacks may be considered with site plan approval	35 feet; additional height may be granted by special permit
II.1	SRR	2,400	Two-family	2,400	N/A	N/A	See Development Standards in Section 20.10.360 of this title	0' when abutting more than 50 ft. street ROW; 20' when abutting 50 ft. or less street ROW	0' when abutting a dedicated alley; 20' when not abutting an alley	N/A	5	5	N/A	Reduction in side yard setbacks may be considered with site plan approval	35 feet; additional height may be granted by special permit

A		SUBPART A	SUBPART B					SUBPART C							SUBPART D
B			Lot & Dwelling Size					Building Setbacks (in feet)							
C	Zoning District	Minimum District Area	Permitted Use (as established in Chapter 20.08)	Minimum Lot Area (square feet)	Minimum Average Lot Width (in feet)	Minimum Lot Depth (in feet)	Other Standards	Minimum Front Yard (in feet)	Minimum Rear Yard (in feet)	Minimum Cumulative Front & Rear Yard Total	Minimum Side Yard (in feet)	Minimum Side Street Yard (in feet)	Minimum Cumulative Side & Side Street Yard Total	Other Standards	Maximum Height Limitation (in feet)
II.2	SRR	3,000	Apartments	3000 sf site area; 500 sf lot area required per dwelling unit	N/A	N/A	See Development Standards in Section 20.10.360 of this title	0' when abutting more than 50 ft. street ROW; 20' when abutting 50 ft. or less street ROW	0' when abutting a dedicated alley; 20' when not abutting an alley	N/A	5	5	N/A	Reduction in side yard setbacks may be considered with site plan approval	35 feet; additional height may be granted by special permit
II.3	SRR	1,000 sf	Other permitted uses, except as otherwise specified in this title	No minimum	No minimum	No minimum	See Development Standards in Section 20.10.360 of this title	0	0	N/A	0	0	N/A	See Chapter 20.10	35 feet; additional height may be granted by special permit

A		SUBPART A	SUBPART B					SUBPART C							SUBPART D
B			Lot & Dwelling Size					Building Setbacks (in feet)							
C	Zoning District	Minimum District Area	Permitted Use (as established in Chapter 20.08)	Minimum Lot Area (square feet)	Minimum Average Lot Width (in feet)	Minimum Lot Depth (in feet)	Other Standards	Minimum Front Yard (in feet)	Minimum Rear Yard (in feet)	Minimum Cumulative Front & Rear Yard Total	Minimum Side Yard (in feet)	Minimum Side Street Yard (in feet)	Minimum Cumulative Side & Side Street Yard Total	Other Standards	Maximum Height Limitation (in feet)
JJ	R-MU	1 acre; except that City Council may approve a reduction in the minimum district area for a mixed-use development within a multi-story building or buildings.	Determined by master zoning plan	N/A	N/A	N/A	See Development Standards in Section 20.10.360 of this title	No minimum; determined by master zoning plan	No minimum; determined by master zoning plan	N/A	No minimum; determined by master zoning plan	No minimum; determined by master zoning plan	N/A	See Chapter 20.10	No maximum; determined by master zoning plan

A		SUBPART A	SUBPART B					SUBPART C							SUBPART D
B			Lot & Dwelling Size					Building Setbacks (in feet)							
C	Zoning District	Minimum District Area	Permitted Use (as established in Chapter 20.08)	Minimum Lot Area (square feet)	Minimum Average Lot Width (in feet)	Minimum Lot Depth (in feet)	Other Standards	Minimum Front Yard (in feet)	Minimum Rear Yard (in feet)	Minimum Cumulative Front & Rear Yard Total	Minimum Side Yard (in feet)	Minimum Side Street Yard (in feet)	Minimum Cumulative Side & Side Street Yard Total	Other Standards	Maximum Height Limitation (in feet)
KK	G-MU	3 acres; except that City Council may approve a reduction in the minimum district area for a mixed-use development.	Determined by master zoning plan	N/A	N/A	N/A	See Development Standards in Section 20.10.360 of this title	No minimum; determined by master zoning plan	No minimum; determined by master zoning plan	N/A	No minimum; determined by master zoning plan	No minimum; determined by master zoning plan	N/A	See Chapter 20.10	No maximum; determined by master zoning plan
LL	I-MU	3 acres; except that City Council may approve a reduction in the minimum district area for a mixed-use development.	Determined by master zoning plan	N/A	N/A	N/A	See Development Standards in Section 20.10.360 of this title	No minimum; determined by master zoning plan	No minimum; determined by master zoning plan	N/A	No minimum; determined by master zoning plan	No minimum; determined by master zoning plan	N/A	See Chapter 20.10	No maximum; determined by master zoning plan

A		SUB-PART A	SUBPART B					SUBPART C							SUBPART D
B			Lot & Dwelling Size					Building Setbacks (in feet)							
C	Zoning District	Minimum District Area	Permitted Use (as established in Chapter 20.08)	Minimum Lot Area (square feet)	Minimum Average Lot Width (in feet)	Minimum Lot Depth (in feet)	Other Standards	Minimum Front Yard (in feet)	Minimum Rear Yard (in feet)	Minimum Cumulative Front & Rear Yard Total	Minimum Side Yard (in feet)	Minimum Side Street Yard (in feet)	Minimum Cumulative Side & Side Street Yard Total	Other Standards	Maximum Height Limitation (in feet)
MM	NOS	1 acre; extensions to the original district from a common boundary may be considered in increments of 1 acre or less.	See permitted uses in Section 20.10.385	43,560	N/A	N/A	See Development Standards in Section 20.10.385	10	10	N/A	10	10	N/A	See development standards in Section 20.10.385	35

(Ord. No. 17306, § 7, 4-6-2010; Ord. No. 17625, § 1, 8-16-2011; Ord. No. 17756, § 1(Exh. A), 3-20-2012; Ord. No. 18289, § 1, 12-16-2014; Ord. No. 18459, §§ 1, 2, 1-12-2016; Ord. No. 019578, § 73—77, 12-12-2023)

Appendix C

TABLE OF PARKING REQUIREMENTS AND STANDARDS

PARKING TABLE	Round Examples: A 200 SF building with a parking requirement of 1/500 SF GFA will require 200/500 =0.4 or no parking. A 250 SF building with a parking requirement of 1/500 SF GFA will require 250/500 -0.5 or 1 parking space. A 24,400 SF building with a parking requirement of 1/500 SF GFA will require 24,400/500 = 48.8 or 49 parking space.

Use Description

1.00	Agricultural & Related Operations	Automobile & Light Truck		Bicycle	Heavy Truck Trailer	Gravel Screen Parking	
		Minimum	Maximum			Required	Notes
1.01	Animal cemetery	1/288 sf GFA	1/200 sf GFA	3 SPACES	None	Allowed	2G
1.03	Animal kennel	1/720 sf GFA	1/500 sf GFA	3 SPACES	None	Allowed	2G
1.04	Animal pound	1/720 sf GFA	1/500 sf GFA	3 SPACES	None	Allowed	2G
1.05	Animal training facility (school)	1/720 sf GFA	1/500 sf GFA	3 SPACES	None	Allowed	2G
1.06	Barn	None	None	None	None	Allowed	2G
1.07	Composting facility	1/720 sf GFA	1/500 sf GFA	None	None	Allowed	2G
1.08	Dude ranch	1/720 sf GFA	1/500 sf GFA	3 SPACES	None	Allowed	2G
1.09	Farm (>5 acres)	1/1,440 sf GFA of buildings	1/1,000 sf GFA of buildings	None	None	Allowed	2G
1.11	Feed yard	1/1,440 sf GFA of buildings	1/1,000 sf GFA of buildings	None	None	Allowed	2G
1.12	Greenhouse (industrial-scale)	1/2880 sf GFA of buildings	1/2000 sf GFA of buildings	None	None	Allowed	2G
1.13	Harvesting (field, tree, bush crops)	None	None	None	None	Allowed	2G
1.14	Livestock auction	1/1,440 sf GFA of buildings	1/1,000 sf GFA of buildings	None	None	Allowed	2G
1.15	Livestock grazing	None	None	None	None	Allowed	2G
1.16	Nursery (industrial-scale)	1/1,440 sf GFA of buildings	1/1,000 sf GFA of buildings	3 SPACES	None	Allowed	2G
1.17	Pasturage & raising (small or large animals)	None	None	None	None	Allowed	2G
1.18	Poultry hatchery	1/1,440 sf GFA of buildings	1/1,000 sf GFA of buildings	None	None	Allowed	2G
1.19	Produce stand	1/288 sf GFA	1/200 sf GFA	3 SPACES	None	Allowed	2G
1.20	Raising (field, tree, bush crops)	None	None	None	None	Allowed	2G
1.21	Raising (small or large animals)	1/475 sf GFA	1/300 sf GFA	None	None	Allowed	2G
1.22	Riding academy	1/720 sf GFA	1/500 sf GFA	3 SPACES	None	Allowed	2G
1.23	Stable (including breeding)	1/720 sf GFA	1/500 sf GFA	3 SPACES	None	Allowed	2G

1.00	Agricultural & Related Operations	Automobile & Light Truck		Bicycle	Heavy Truck Trailer	Gravel Screen Parking	
		Minimum	Maximum			Required	Notes
1.24	Veterinary treatment center (large animals)	1/576 sf GFA	1/400 sf GFA	3 SPACES	None	Allowed	2G
1.25	Veterinary treatment center (small animals)	1/576 sf GFA	1/400 sf GFA	3 SPACES	None	Allowed	2G

2.00	Commercial Storage & Processing	Automobile & Light Truck		Bicycle	Heavy Truck Trailer	Gravel Screen Parking	
		Minimum	Maximum			Required	Notes
2.01	Automobile wrecking yard	1/576 sf GFA	1/400 sf GFA	None	1/acre; max 10	Allowed	2C
2.02	Bottling works	1/720 sf GFA	1/500 sf GFA	NOTE 3	1/100,000 sf; min 1	Allowed	2C

2.00	Commercial Storage & Processing	Automobile & Light Truck		Bicycle	Heavy Truck Trailer	Gravel Screen Parking	
		Minimum	Maximum			Required	Notes
2.04	Contractor yard (greater than one acre)	1/1440 sf GFA of buildings	1/1000 sf GFA of buildings	None	1/acre; max 10	Allowed	2C
2.05	Contractor yard (less than one acre)	1/1440 sf GFA of buildings	1/1000 sf GFA of buildings	None	One	Allowed	2C
2.06	Explosives (storage)	1/1440 sf GFA	1/1000 sf GFA	None	One	Allowed	2C
2.07	Food Storage Locker	1/1440 sf GFA	1/1000 sf GFA	NOTE 3	None	Allowed	2C
2.08	Warehouse	1/576 sf GFA office (located in proximity to offices), plus 1/7200 sf GFA warehouse (can include spaces in aisles between buildings)	1/400 sf GFA office (located in proximity to offices), plus 1/5000 sf GFA warehouse (can include spaces in aisles between buildings)	NOTE 3	1/100,000 sf; min 1	Allowed	2C
2.09	Liquified petroleum gas (storage & dispensing)	1/1440 sf GFA	1/1000 sf GFA	None	Two	Allowed	2C
2.12	Moving & storage facility	1/576 sf GFA office, plus 1/7200 sf GFA warehouse	1/400 sf GFA office, plus 1/5000 sf GFA warehouse	NOTE 3	1/100,000 sf; min 1	Allowed	2C
2.13	Office warehouse	1/576 sf GFA office, plus 1/7200 sf GFA warehouse	1/400 sf GFA office, plus 1/5000 sf GFA warehouse	NOTE 3	1/100,000 sf; min 1	Allowed	2C
2.14	Salvage yard (scrap materials)	1/1440 sf GFA	1/1000 sf GFA	None	1/acre; max 10	Allowed	2C
2.15	Self storage warehouse	1/576 sf GFA office (located in proximity to offices), plus 1/7200 sf GFA warehouse (can include spaces in aisles between buildings)	1/400 sf GFA office (located in proximity to offices), plus 1/5000 sf GFA warehouse (can include spaces in aisles between buildings)	NOTE 3	1/100,000 sf; min 1	Allowed	2C
2.16	Storage of supplies, equipment, goods	1/7200 sf GFA warehouse plus 1/7200 sf outdoor storage	1/5000 sf GFA warehouse plus 1/5000 sf outdoor storage	None	1/100,000 sf; min 1	Allowed	2C

3.00	Educational, Institutional & Social	Automobile & Light Truck		Bicycle	Heavy Truck Trailer	Gravel Screen Parking	
		Minimum	Maximum			Required	Notes
3.01	Adult day care center	1/720 sf GFA	1/500 sf GFA	NOTE 3	None	Not Allowed	2A, B
3.02	Art gallery	1/1440 sf GFA	1/1000 sf GFA	NOTE 3	Over 20,000 sf GFA = 1	Allowed	2A, B
3.03	Child care facility, Type 3	1/475 sf GFA	1/330 sf GFA	NOTE 3	None	Allowed	2A, B
3.04	Child care facility, Type 4	1/475 sf GFA	1/330 sf GFA	NOTE 3	None	Allowed	2A, B
3.05	Child care facility, Type 5	1/475 sf GFA	1/330 sf GFA	NOTE 3	None	Allowed	2A, B
3.07	Child care facility, Type 7	1/475 sf GFA	1/330 sf GFA	NOTE 3	None	Allowed	2A, B
3.09	Church/Mosque	1/144 sf GFA of auditorium; plus 1/576 sf GFA of other areas	1/100 sf GFA of auditorium; plus 1/400 sf GFA of other areas	NOTE 3	None	Allowed	2A, B
3.10	Community center	1/475 sf GFA	1/300 sf GFA	NOTE 3	None	Not Allowed	2A, B
3.11	Convent	0.3/resident/bedroom	0.5/resident/bedroom	NOTE 3	None	Allowed	2A, B

3.00	Educational, Institutional & Social	Automobile & Light Truck		Bicycle	Heavy Truck Trailer	Gravel Screen Parking	
		Minimum	Maximum			Required	Notes
3.12	Correctional facility	NOTE 1	NOTE 1	None	NOTE 1	Not Allowed	2A, B
3.125[1]	Halfway house	NOTE 1	NOTE 1	None	None	Not Allowed	2A, B
3.125[2]	Emergency shelter	None	None	None	None	Allowed	2H
3.1265	Homeless shelter	NOTE 1	NOTE 1	None	None	None	2A,B
3.13	Library	1/475 sf GFA	1/300 sf GFA	NOTE 3	20,000 - 100,000 sf GFA = 1; over 100,000 sf GFA =	Allowed	2A, B
3.14	Lodge	1/266 sf GFA	1/185 sf GFA	NOTE 3	None	Allowed	2A, B
3.15	Monastery	0.3/resident/bedroom	0.5/resident/bedroom	NOTE 3	None	Allowed	2A, B
3.16	Museum	1/1440 sf GFA	1/1000 sf GFA	NOTE 3	1/50,000 sf GFA	Not Allowed	2A, B
3.17	Orphanage, shelter	NOTE 1	NOTE 1	NOTE 3	None	Not Allowed	2A, B
3.175	Reserved.						
3.18	Penal facility	NOTE 1	NOTE 1	None	Two	Not Allowed	2A, B
3.19	School, public, & private or parochial	1/1440 sf GFA	1/1000 sf GFA	NOTE 3	Up to 25,000 sf GFA = 1; Over 25,000 sf GFA = 2	Allowed	2A, B
3.20	School, public, private or parochial (Pre-K through 8)	1/1440 sf GFA	1/1000 sf GFA	NOTE 3	Over 25,000 sf GFA = 1	Allowed	2A, B
3.21	School, Trade	1/475 sf GFA	1/300 sf GFA	NOTE 3	None	Allowed	2A, B
3.22	School, vocational B77	1/475 sf GFA	1/300 sf GFA	NOTE 3	None	Allowed	2A, B
3.23	Social, fraternal club	1/475 sf GFA	1/300 sf GFA	NOTE 3	None	Allowed	2A, B
3.24	Synagogue	1/144 sf GFA of auditorium; plus 1/576 sf GFA of other areas	1/100 sf GFA of auditorium; plus 1/400 sf GFA of other areas	NOTE 3	None	Allowed	2A, B
3.25	Temple	1/144 sf GFA of auditorium; plus 1/576 sf GFA of other areas	1/100 sf GFA of auditorium; plus 1/400 sf GFA of other areas	NOTE 3	None	Allowed	2A, B
3.26	Union hall	1/475 sf GFA	1/300 sf GFA	NOTE 3	None	Allowed	2A, B
3.27	University, college	Dorms = 1/4 residents; Gyms = 1/576 sf GFA; Admin/Offices = 1/475 sf GFA; Classroom Facilities = 1/720 sf GFA	Dorms = 1/2 residents; Gyms = 1/400 sf GFA; Admin/Offices = 1/300 sf GFA; Classroom Facilities = 1/500 sf GFA	NOTE 3	1/50,000 sf up to 400,000 sf, plus 1/100,000 sf over 400,000 sf	Allowed	2A, B
3.28	Youth organization (with/without living facility)	1/720 sf GFA	1/500 sf GFA	NOTE 3	None	Allowed	2A, B

4.00	Office & Research Services	Automobile & Light Truck		Bicycle	Heavy Truck Trailer	Gravel Screen Parking	
		Minimum	Maximum			Required	Notes
4.01	Automated Teller Machine (ATM)	None	None	None	None	Not Allowed	2A, B

4.00	Office & Research Services	Automobile & Light Truck		Bicycle	Heavy Truck Trailer	Gravel Screen Parking	
		Minimum	Maximum			Required	Notes
4.02	Bank	1/288 sf GFA; plus 3 queue spaces per teller window	1/200 sf GFA; plus 5 queue spaces per teller window	NOTE 3	None	Not Allowed	2A, B
4.03	Courier & message service	1/576 sf GFA	1/400 sf GFA	NOTE 3	None	Not Allowed	2A, B
4.035	Credit access business	1/288 GFA	1/200 GFA	NOTE 3	None	Not Allowed	2A, B
4.04	Credit union	1/288 sf GFA; plus 3 queue spaces per teller window	1/200 sf GFA; plus 5 queue spaces per teller window	NOTE 3	None	Not Allowed	2A, B
4.05	Data processing center (hyperscale)	1/150,000 sf GFA Warehouse, plus 1/1,000 sf GFA Office (NOTE 4)	1/75,000 sf GFA Warehouse, plus 1/500 sf GFA Office (NOTE 4)	NOTE 3	None	Allowed	2A, B
4.06	Employment agency	1/576 sf GFA	1/400 sf GFA	NOTE 3	None	Allowed	2A, B
4.07	Financial institution	1/288 sf GFA; plus 3 queue spaces per teller window	1/200 sf GFA; plus 5 queue spaces per teller window	NOTE 3	None	Not Allowed	2A, B
4.08	Office, administrative/manager's	1/576 sf GFA	1/400 sf GFA	NOTE 3	1/200,000 sf GFA	Allowed	2A, B
4.09	Office, business	1/576 sf GFA	1/400 sf GFA	NOTE 3	1/200,000 sf GFA	Allowed	2A, B
4.10	Office, medical	1/288 sf GFA	1/200 sf GFA	NOTE 3	1/200,000 sf GFA	Not Allowed	2A, B
4.11	Office, professional	1/576 sf GFA	1/400 sf GFA	NOTE 3	1/200,000 sf GFA	Allowed	2A, B
4.12	Radio broadcasting studio	1/576 sf GFA	1/400 sf GFA	NOTE 3	None	Allowed	2A, B
4.13	Research Laboratory	1/576 sf GFA	1/400 sf GFA	NOTE 3	1/200,000 sf GFA	Allowed	2A, B
4.14	School, arts & crafts	1/288 sf GFA	1/200 sf GFA	NOTE 3	None	Allowed	2A, B
4.15	Studio, dance	1/576 sf GFA	1/400 sf GFA	NOTE 3	None	Allowed	2A, B
4.16	Studio, music	1/576 sf GFA	1/400 sf GFA	NOTE 3	None	Allowed	2A, B
4.17	Studio, photography	1/576 sf GFA	1/400 sf GFA	NOTE 3	None	Allowed	2A, B
4.18	Telemarketing agency	1/288 sf GFA	1/200 sf GFA	NOTE 3	None	Not Allowed	2A, B
4.19	Television broadcasting studio	1/576 sf GFA	1/400 sf GFA	NOTE 3	None	Allowed	2A, B

5.00	Manufacturing, Processing & Assembling	Automobile & Light Truck		Bicycle	Heavy Truck Trailer	Gravel Screen Parking	
		Minimum	Maximum			Required	Notes
5.01	Minimal food manufacturing	1/960 sf GFA	1/1,500 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
5.02	Animal slaughtery & processing	1/960 sf GFA	1/1,500 sf GFA	None	1/50,000 sf GFA	Allowed	2C
5.03	Apparel manufacturing	1/960 sf GFA	1/1,500 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C

5.00	Manufacturing, Processing & Assembling	Automobile & Light Truck		Bicycle	Heavy Truck Trailer	Gravel Screen Parking	
		Minimum	Maximum			Required	Notes
5.04	Beverage product manufacturing	1/960 sf GFA	1/1,500 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
5.05	Bread & bakery product manufacturing	1/960 sf GFA	1/1,500 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
5.06	Brewery	1/864 sf GFA	1/720 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
5.07	Chemical manufacturing	1/960 sf GFA	1/1,500 sf GFA	None	1/50,000 sf GFA	Allowed	2C
5.08	Coal products manufacturing	1/960 sf GFA	1/1,500 sf GFA	None	1/50,000 sf GFA	Allowed	2C
5.09	Commercial & service industry manufacturing	1/960 sf GFA	1/1,500 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
5.11	Computer product manufacturing	1/960 sf GFA	1/1,500 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
5.12	Dairy product manufacturing	1/960 sf GFA	1/1,500 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
5.13	Electronic product manufacturing	1/960 sf GFA	1/1,500 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
5.14	Fabricated metal product manufacturing	1/960 sf GFA	1/1,500 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
5.15	Food manufacturing, other	1/960 sf GFA	1/1,500 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
5.17	Grain & oil seed milling	1/960 sf GFA	1/1,500 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
5.18	Household product manufacturing	1/960 sf GFA	1/1,500 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
5.19	Leather & allied product manufacturing	1/960 sf GFA	1/1,500 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
5.20	Machinery manufacturing	1/960 sf GFA	1/1,500 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
5.21	Nonmetallic mineral product manufacturing	1/960 sf GFA	1/1,500 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
5.22	Paper products manufacturing	1/960 sf GFA	1/1,500 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
5.23	Petroleum products manufacturing	1/960 sf GFA	1/1,500 sf GFA	None	1/50,000 sf GFA	Allowed	2C
5.24	Plastic products manufacturing	1/960 sf GFA	1/1,500 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
5.25	Primary metal manufacturing	1/960 sf GFA	1/1,500 sf GFA	None	1/50,000 sf GFA	Allowed	2C
5.25.5	Processing facilities	1/1,440 sf GFA	1/1,000 sf GFA	None	1/50,000 sf GFA	Allowed	2C
5.26	Recycling collection facility (large)	1/1,440 sf GFA	1/1,000 sf GFA	3 SPACES	1/50,000 sf GFA	Allowed	2C
5.27	Recycling collection facility (small)	1/1,440 sf GFA	1/1,000 sf GFA	3 SPACES	None	Allowed	2C
5.28	Reverse vending machines	None	One	None	None	Allowed	2C
5.29	Rubber product manufacturing	1/2,160 sf GFA	1/1,500 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
5.30	Seafood product preparation & processing	1/2,160 sf GFA	1/1,500 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
5.31	Sugar & confectionery product manufacturing	1/2,160 sf GFA	1/1,500 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
5.32	Testing laboratory	1/576 sf GFA	1/400 sf GFA	NOTE 3	1/100,000 sf GFA	Allowed	2C
5.33	Textile mill	1/960 sf GFA	1/1,500 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
5.34	Textile product mill	1/960 sf GFA	1/1,500 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
5.35	Tobacco product manufacturing	1/960 sf GFA	1/1,500 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
5.36	Transportation equipment manufacturing	1/960 sf GFA	1/1,500 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
5.37	Wood products manufacturing	1/2,160 sf GFA	1/1,500 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C

6.00	Medical & Related Uses	Automobile & Light Truck		Bicycle	Heavy Truck Trailer	Gravel Screen Parking	
		Minimum	Maximum			Required	Notes
6.01	Assisted living facility (elderly)	1/4.3 patient unit	1/3 patient unit	NOTE 3	1/100,000 sf GFA	Not Allowed	2I, C
6.02	Clinic	1/360 sf GFA	1/250 sf GFA	NOTE 3	1/100,000 sf GFA	Not Allowed	2I, C
6.03	Convalescent home	1/4.3 patient unit	1/3 patient unit	NOTE 3	1/100,000 sf GFA	Not Allowed	2I, C
6.04	Drug store	1/360 sf GFA	1/250 sf GFA	NOTE 3	Over 25,000 sf GFA = one	Not Allowed	2I, C
6.05	Hospital	1/576 sf GFA	1/400 sf GFA	NOTE 3	1/50,000 sf GFA	Not Allowed	2I, C
6.06	Intermediate care facility (elderly)	1/4.3 patient unit	1/3 patient unit	NOTE 3	1/100,000 sf GFA	Not Allowed	2I, C
6.07	Medical laboratory	1/576 sf GFA	1/400 sf GFA	NOTE 3	1/100,000 sf GFA	Not Allowed	2I, C
6.08	Medical treatment facility	1/576 sf GFA	1/400 sf GFA	NOTE 3	1/100,000 sf GFA	Not Allowed	2I, C
6.09	Nursing home	1/4.3 patient unit	1/3 patient unit	NOTE 3	1/100,000 sf GFA	Not Allowed	2I, C
6.10	Optical dispensary	1/360 sf GFA	1/250 sf GFA	NOTE 3	Over 25,000 sf GFA = one	Not Allowed	2I, C

6.00	Medical & Related Uses	Automobile & Light Truck		Bicycle	Heavy Truck Trailer	Gravel Screen Parking	
		Minimum	Maximum			Required	Notes
6.11	Pharmacy	1/360 sf GFA	1/250 sf GFA	NOTE 3	Over 25,000 sf GFA = one	Not Allowed	2I, C
6.12	Rest home	1/4.3 patient unit	1/3 patient unit	NOTE 3	Over 25,000 sf GFA = one	Not Allowed	2I, C
6.13	Sanitarium	1/4.3 patient unit	1/3 patient unit	NOTE 3	Over 25,000 sf GFA = one	Not Allowed	2I, C

7.00	Mining & Quarrying Operations	Automobile & Light Truck		Bicycle	Heavy Truck Trailer	Gravel Screen Parking	
		Minimum	Maximum			Required	Notes
7.01	Batching plant	None	None	None	None	Allowed	2F
7.02	Borrow pit (commercial)	None	None	None	None	Allowed	2F
7.03	Drilling gas well	None	None	None	None	Allowed	2F
7.04	Drilling oil well	None	None	None	None	Allowed	2F
7.05	Quarry	None	None	None	None	Allowed	2F
7.06	Raw material processing	None	None	None	None	Allowed	2F
7.07	Sand & gravel extraction	None	None	None	None	Allowed	2F
7.08	Shaft mining	None	None	None	None	Allowed	2F
7.09	Strip mining	None	None	None	None	Allowed	2F

8.00	Motor Vehicle Sale & Service	Automobile & Light Truck		Bicycle	Heavy Truck Trailer	Gravel Screen Parking	
		Minimum	Maximum			Required	Notes
8.01	Ambulance service	1/576 sf of GFA of buildings; plus 1/ambulance	1/400 sf of GFA of buildings; plus 1/ambulance	3 SPACES	None	Not Allowed	2C
8.02	Automobile (sales, service, storage & rental)	1/576 sf of GFA of buildings; plus merchandise parking areas	1/400 sf of GFA of buildings; plus merchandise parking areas	3 SPACES	One	Not Allowed Storage Only	2C
8.03	Automobile part sales	1/576 sf of GFA of buildings	1/400 sf of GFA of buildings	3 SPACES	None	Not Allowed	2C
8.05	Automotive repair garage	1/720 sf GFA	1/500 sf GFA	3 SPACES	None	Not Allowed	2C
8.06	Automotive service station	1/288 sf GFA	1/200 sf GFA	3 SPACES	None	Not Allowed	2C
8.07	Boat, boat-trailer (sales, service, storage & rental)	1/576 sf of GFA of buildings; plus merchandise parking areas	1/400 sf of GFA of buildings; plus merchandise parking areas	3 SPACES	One	Allowed	2C
8.08	Bus (sales, service, storage & rental)	1/576 sf of GFA of buildings; plus merchandise parking areas	1/400 sf of GFA of buildings; plus merchandise parking areas	3 SPACES	One	Allowed	2C
8.09	Carwash, full-service	1/576 sf of GFA of buildings; includes parking in queue	1/400 sf of GFA of buildings; includes parking in queue	3 SPACES	None	Not Allowed	2C
8.10	Carwash, self-service	1/576 sf of GFA of buildings; includes parking in bays	1/400 sf of GFA of buildings; includes parking in bays	3 SPACES	None	Not Allowed	2C

8.00	Motor Vehicle Sale & Service	Automobile & Light Truck		Bicycle	Heavy Truck Trailer	Gravel Screen Parking	
		Minimum	Maximum			Required	Notes
8.11	Commercial fueling station	1/360 sf of GFA of buildings, not counting parking in fueling	1/250 sf of GFA of buildings; not counting parking in fueling areas	3 SPACES	None	Not Allowed	2C
8.12	Contractor equipment (sales, storage, repair & rental)	1/576 sf of GFA of buildings; plus merchandise parking areas	1/400 sf of GFA of buildings; plus merchandise parking areas	3 SPACES	One	Allowed	2C
8.13	Farm equipment (sales, storage, repair & rental)	1/576 sf of GFA of buildings; plus merchandise parking areas	1/400 sf of GFA of buildings; plus merchandise parking areas	3 SPACES	One	Allowed	2C
8.14	Heavy equipment (sales, storage, repair & rental)	1/576 sf of GFA of buildings; plus merchandise parking areas	1/400 sf of GFA of buildings; plus merchandise parking areas	3 SPACES	One	Allowed	2C
8.15	Heavy truck (sales, storage, repair & rental)	1/576 sf of GFA of buildings; plus merchandise parking areas	1/400 sf of GFA of buildings; plus merchandise parking areas	3 SPACES	One	Allowed	2C
8.16	Light truck (sales, service, storage & rental)	1/576 sf of GFA of buildings; plus merchandise parking areas	1/400 sf of GFA of buildings; plus merchandise parking areas	3 SPACES	One	Not Allowed for Sales, Service or Rental	2C
8.17	Light truck part sales	1/576 sf of GFA of buildings; plus merchandise parking areas	1/400 sf of GFA of buildings; plus merchandise parking areas	3 SPACES	None	Not Allowed	2C
8.18	Manufactured home (sales, display & repair)	1/576 sf of GFA of buildings; plus merchandise parking areas	1/400 sf of GFA of buildings; plus merchandise parking areas	3 SPACES	None	Allowed	2C
8.19	Mobile home (sales, display & repair)	1/576 sf of GFA of buildings; plus merchandise parking areas	1/400 sf of GFA of buildings; plus merchandise parking areas	3 SPACES	None	Allowed	2C
8.20	Motor vehicle repair (Major)	3.6/each service bay not counting bay as parking	3/each service bay not counting bays as parking spaces	3 SPACES	None	Not Allowed	2C
8.21	Motor vehicle repair (minor, vehicle inspections station)	3.6/each service bay not counting bay as parking	3/each service bay not counting bays as parking	3 SPACES	None	Not Allowed	2C
8.22	Motorcycle (sales, service, storage & rental)	1/576 sf of GFA of buildings; plus merchandise parking areas	1/400 sf of GFA of buildings; plus merchandise parking areas	3 SPACES	None	Not Allowed for Sales, Service or Rental	2C
8.23	Recreation vehicle park	1/576 sf of GFA of building; plus stall parking area	1/400 sf of GFA of buildings; plus stall parking area	3 SPACES	None	Allowed	2C
8.24	Trailer, 18-wheeler (sales, display & repair)	1/576 sf of GFA of buildings; plus merchandise parking areas	1/400 sf of GFA of buildings; plus merchandise parking areas	3 SPACES	None	Allowed	2C
8.25	Truck stop	1/720 sf GFA of buildings	1/500 sf GFA of buildings	3 SPACES	None	Not Allowed	2C

9.00	Parking & Loading	Automobile & Light Truck		Bicycle	Heavy Truck Trailer	Gravel Screen Parking	
		Minimum	Maximum			Required	Notes
9.01	Garage, parking (commercial)	Not applicable	Not applicable	NOTE 3	Not applicable	Not Allowed	N/A
9.02	Garage, parking (community)	Not applicable	Not applicable	NOTE 3	Not applicable	Not Allowed	N/A
9.03	Garage, parking (private)	Not applicable	Not applicable	NOTE 3	Not applicable	Not Allowed	N/A
9.04	Loading spaces (serving another property)	Not applicable	Not applicable	Not applicable	Not applicable	Not Allowed	N/A
9.05	On-site loading spaces	Not applicable	Not applicable	Not applicable	Not applicable	Not Allowed	N/A
9.06	On-site parking spaces	Not applicable	Not applicable	Not applicable	Not applicable	Not Allowed	N/A
9.08	Parking spaces (serving another property)	Not applicable	Not applicable	Not applicable	Not applicable	Allowed	Dependent upon use

10.00	Personal Services	Automobile & Light Truck		Bicycle	Heavy Truck Trailer	Gravel Screen Parking	
		Minimum	Maximum			Required	Notes
10.01	Barber shop	1/360 sf GFA	1/250 sf GFA	NOTE 3	None	Allowed	2C
10.02	Beauty salon	1/360 sf GFA	1/250 sf GFA	NOTE 3	None	Allowed	2C
10.03	Cemetery	1/288 sf GFA of building	1/200 sf GFA of buildings	3 SPACES	One	Allowed	2C
10.04	Crematorium	1/576 sf GFA of building	1/400 sf GFA of buildings	None	One	Allowed	2C
10.05-07	Dry-cleaners, shop/commercial	1/360 sf GFA	1/250 sf GFA	NOTE 3	None	Not Allowed	2C
10.08	Extermination Services	1/360 sf GFA	1/250 sf GFA	3 SPACES	None	Allowed	2C
10.09	Funeral home	1/144 sf GFA of visitor area	1/100 sf GFA of visitor area	3 SPACES	None	Allowed	2C
10.11	Laundromat, laundry	1/288 sf GFA	1/200 sf of GFA	NOTE 3	None	Not Allowed	2C
10.12	Laundry (commercial)	1/288 sf floor area	1/200 sf floor area	NOTE 3	One	Not Allowed	2C
10.13	Locksmith	1/360 sf GFA	1/250 sf GFA	NOTE 3	None	Not Allowed	2C
10.15	Mausoleum	1/576 sf GFA of building	1/400 sf GFA of building	3 SPACES	One	Allowed	2C
10.16	Mortuary	1/144 sf GFA of visitor area	1/100 sf GFA of visitor area	3 SPACES	None	Allowed	2C
10.17	Photofinishing lab	1/360 sf GFA	1/250 sf GFA	NOTE 3	None	Allowed	2C
10.18	Shoe repair shop	1/360 sf GFA	1/250 sf GFA	NOTE 3	None	Allowed	2C
10.19	Tattoo parlor	1/360 sf GFA	1/250 sf GFA	NOTE 3	None	Allowed	2C
10.20	Taxidermist	1/360 sf GFA	1/250 sf GFA	NOTE 3	None	Allowed	2C

11.00	Recreation Amusement & Entertainment	Automobile & Light Truck		Bicycle	Heavy Truck Trailer	Gravel Screen Parking	
		Minimum	Maximum			Required	Notes
11.01	Adult motion picture theatre	1/144 sf GFA	1/100 sf GFA	NOTE 3	None	Not Allowed	2D
11.02	Amusement game complex (indoor)	1/288 sf GFA	1/200 sf GFA	NOTE 3	1/50,000 sf GFA of buildings	Allowed	2D
11.03	Amusement park (indoor & outdoor)	1/1440 sf GFA of indoor & outdoor rec. areas	1/1000 sf GFA of indoor & outdoor rec. areas	NOTE 3	1/50,000 sf GFA of indoor & outdoor rec. areas	Allowed	2D
11.04	Athletic facility (indoor)	1/720 sf GFA	1/500 sf GFA	NOTE 3	None	Allowed	2D
11.05	Athletic facility (outdoor)	1/720 sf GFA of buildings, pools and courts	1/500 sf GFA of buildings, pools and courts	NOTE 3	None	Allowed	2D
11.06	Ballroom	1/144 sf GFA of assembly area; plus 1/288 sf GFA of other areas	1/100 sf GFA of assembly area; plus 1/200 sf GFA of other areas	NOTE 3	One	None	2D
11.07	Billiard and pool hall	1/360 sf GFA	1/250 sf GFA	NOTE 3	None	Allowed	2D
11.08	Bingo hall	1/144 sf GFA of assembly area; plus 1/288 sf GFA of other areas	1/100 sf GFA of assembly area; plus 1/200 sf GFA of other areas	NOTE 3	None	Allowed	2D
11.09	Bowling alley	1/266 sf GFA	1/185 sf GFA	NOTE 3	One	Allowed	2D
11.10	Campground	1/576 sf GFA of buildings; not counting camping unit spaces	1/400 sf GFA of buildings; not counting camping unit spaces	None	None	Allowed	2D
11.11	Coliseum	1/90 sf GFA	1/50 sf GFA	NOTE 3	1/100,000 sf	Allowed	2D
11.12	Community recreational building	1/576 sf GFA	1/400 sf GFA	NOTE 3	None	Allowed	2D
11.13	Convention center	1/576 sf GFA	1/400 sf GFA	NOTE 3	1/100,000 sf	Allowed	2D
11.14	Dancehall	1/90 sf of GFA	1/50 sf of GFA	NOTE 3	One	Allowed	2D
11.15	Exercise facility (indoor)	1/288 sf GFA	1/200 sf GFA	NOTE 3	One	Allowed	2D
11.16	Exhibition hall	1/90 sf GFA	1/50 sf GFA	NOTE 3	1/100,000 sf	Allowed	2D
11.17	Fairground	1/1440 sf GFA	1/1000 sf GFA	NOTE 3	1/100,000 sf	Allowed	2D
11.18	Gambling casino	1/396 sf GFA	1/50 sf of GFA	NOTE 3	1/100,000 sf	Allowed	2D
11.19	Go-cart track	1/1440 sf outdoor rec. area; & 1/288 sf GFA of buildings	1/1000 sf outdoor rec. area; & 1/200 sf GFA of buildings	NOTE 3	None	Allowed	2D
11.20	Golf course (with/without restaurant & bar)	1/288 sf GFA meeting rooms; plus 1/144 sf GFA restaurant and bar areas; plus 1/576 sf GFA of other areas	1/200 sf GFA meeting rooms; plus 1/100 sf GFA restaurant and bar areas; plus 1/400 sf GFA of other areas	NOTE 3	None	Allowed	2D
11.22	Golf driving range	0.9/tee spaces plus 1/288 sf GFA of buildings	1/tee space plus 1/200 sf GFA of buildings	NOTE 3	None	Allowed	2D
11.23	Ice skating facility	1/266 sf GFA	1/185 sf GFA	NOTE 3	None	Allowed	2D
11.24	Laser games center	1/266 sf GFA	1/185 sf GFA	NOTE 3	None	Allowed	2D
11.25	Miniature golf course	0.9/hole	1/hole	NOTE 3	None	Allowed	2D
11.26	Movie theatre (indoor)	1/3.6 seats	1/2.5 seats	NOTE 3	None	Not Allowed	2D
11.27	Movie theatre, drive-in (outdoor)	1.0/speaker station	1.0/speaker station	None	None	Allowed	2D
11.28	Nightclub, bar, cocktail lounge	1/144 sf GFA	1/100 sf GFA	NOTE 3	None	Allowed	2D

11.00	Recreation Amusement & Entertainment	Automobile & Light Truck		Bicycle	Heavy Truck Trailer	Gravel Screen Parking	
		Minimum	Maximum			Required	Notes
11.29	Nude live entertainment club	1/144 sf GFA	1/100 sf GFA	NOTE 3	None	Allowed	2D
11.30	Paint ball center (indoor)	1/475 sf GFA	1/300 sf GFA	NOTE 3	None	Allowed	2D
11.31	Paint ball center (outdoor)	1/1440 sf outdoor rec. area; & 1/288 sf GFA of buildings	1/1000 sf outdoor rec. area; & 1/200 sf GFA of buildings	NOTE 3	None	Allowed	2D
11.32	Park	2 per acre of outdoor recreation area. EXCEPTION: Off-street parking is not required for parks 2.1 to 5 acres in size where adequate on-street parking is available immediately adjacent to the park.		With rec. building, 10 spaces minimum; w/out building 5 minimum	None	Allowed	2D
11.33	Racetrack, auto or truck	1/7 seats for stands	1/5 seats for stands	NOTE 3	1/25,000 sf GFA	Allowed	2D
11.34	Racetrack, motorcycle	1/7 seats for stands	1/5 seats for stands	NOTE 3	1/25,000 sf GFA	Allowed	2D
11.35	Racquetball club (indoor) (with/without restaurant & bar)	1/576 sf GFA	1/400 sf GFA	NOTE 3	None	Not Allowed	2D
11.36	Racquetball club (outdoor) with/without restaurant & bar)	1/576 sf GFA of buildings & courts	1/400 sf GFA of buildings & courts	NOTE 3	None	Not Allowed	2D
11.37	Roller skating facility	1/475 sf GFA	1/300 sf GFA	NOTE 3	None	Not Allowed	2D
11.38	Sauna, exercise room	None	None	NOTE 3	None	Not Allowed	2D
11.39	Shooting range, archery, gun (indoor)	0.9/shooting station	1/shooting station	NOTE 3	None	Not Allowed	2D
11.40	Shooting range archery or gun (outdoor)	0.9/shooting station	1/shooting station	None	None	Not Allowed	2D
11.41	Skateboarding facility (indoor)	1/720 sf GFA	1/500 sf GFA	NOTE 3	None	Not Allowed	2D
11.42	Skateboarding facility (outdoor)	1/1440 sf outdoor rec. area	1/1000 sf outdoor rec. area	NOTE 3	None	Not Allowed	2D
11.44	Sports arena/Stadium	1/7 seats in main area	1/5 seats in main arena	NOTE 3	1/100,000 sf; min 1	Not Allowed	2D
11.45	Swimming pool (commercial)	1/475 sf GFA pool areas & buildings	1/300 sf GFA pool areas & buildings	NOTE 3	None	Not Allowed	2D
11.46	Tennis club (indoor) (with/without restaurant & bar)	3.6/court	3/court	NOTE 3	None	Not Allowed	2D
11.47	Tennis club (outdoor) (with/without restaurant & bar)	3.6/court	3/court	NOTE 3	None	Not Allowed	2D
11.48	Theatre, performing	1/6 seats or 1/144 sf of floor area	1/4 seats or 1/100 sf of floor area	NOTE 3	1/100,000 sf; min 2	Not Allowed	2D
11.49	Tramway	19 spaces/use	20 spaces/use	NOTE 3	None	Allowed	2D

12.00	Repair & Service	Automobile & Light Truck		Bicycle	Heavy Truck Trailer	Gravel Screen Parking	
		Minimum	Maximum			Required	Notes
12.01	Commercial equipment repair	1/475 sf GFA	1/300 sf GFA	NOTE 3	1/100,000 sf GFA	Not Allowed	2C
12.02	Electronic equipment repair	1/475 sf GFA	1/300 sf GFA	NOTE 3	1/100,000 sf GFA	Not Allowed	2C

12.00	Repair & Service	Automobile & Light Truck		Bicycle	Heavy Truck Trailer	Gravel Screen Parking	
		Minimum	Maximum			Required	Notes
12.03	Household goods repair	1/475 sf GFA	1/300 sf GFA	NOTE 3	1/100,000 sf GFA	Not Allowed	2C
12.04	Industrial equipment repair	1/475 sf GFA	1/300 sf GFA	NOTE 3	1/100,000 sf GFA	Not Allowed	2C
12.05	Personal goods repair	1/475 sf GFA	1/300 sf GFA	NOTE 3	1/100,000 sf GFA	Not Allowed	2C
12.06	Precision equipment repair	1/475 sf GFA	1/300 sf GFA	NOTE 3	1/100,000 sf GFA	Not Allowed	2C

13.00	Residential	Automobile & Light Truck		Bicycle	Heavy Truck Trailer	Gravel Screen Parking	
		Minimum	Maximum			Required	Notes
13.01	Animals, keeping for enjoyment purposes, non-commercial	None		None	None	Allowed	N/A
13.02	Apartments (5 or more units)	0.7/elderly apt; 1/efficiency apt; 1.5/one bedroom apt 2/ two or more		NOTE 3	None	Allowed	2C
13.03	Bed and breakfast (residence)	1/rented bedroom plus number required for operator's residence		None	None	Allowed	2C
13.04	Bed and breakfast inn	1/rented bedroom plus number required for operator's residence		None	None	Allowed	2C
13.05	Boarding house	1/2 rented bedroom plus number required for operator's residence		NOTE 3	None	Allowed	2C
13.06	Boarding home facility	1 space per every 2 bedrooms or portion thereof, and 1 space per every 2 employees or portion thereof		NOTE 3	None	Allowed	2H
13.065	Disabled group dwelling	1 motor vehicle for every one bedroom	No more than 1 motor vehicle per bedroom	Note 3	None	Not Allowed	2H
13.07	Domestic garden house, toolhouse, playhouse	None		None	None	Allowed	2H
13.08	Domestic storage	None		None	None	Allowed	2H
13.09	Duplex (two-family dwelling)	2/dwelling unit		None	None	Allowed	2H
13.10	Dwelling, resident watchman or property caretaker	2/dwelling unit		None	None	Allowed	2H
13.11	Family home	1/3.6 resident bedrooms plus number required for operator's residence		None	None	Allowed	2H
13.115	Group residential facility	2 spaces for group residential facility, plus one additional space for each resident over 5 persons	N/A	Note 3	None	Not Allowed	2H
13.12	Guest, employee quarters	2/dwelling unit		None	None	Allowed	2H
13.13	Home occupation uses (City licensed)	Number required for HO use plus spaces required for the dwelling unit		None	None	Allowed	2H
13.14	Home occupation uses (non-City licensed)	1 plus spaces required for the dwelling unit		None	None	Allowed	2H
13.15	Hotel	0.9/rental room; plus 1/960 sf of public meeting and restaurant space		3 SPACES	1/100,00 sf GFA	Allowed	2C
13.16	HUD-Code Manufactured Home	2/dwelling unit		None	None	Allowed	2H
13.17	HUD-Code Manufactured Home Park	2 for office and laundry building; plus number required for each unit		None	None	Allowed	2H
13.18	Industrialized House	2/dwelling unit in each unit		None	None	Allowed	2H

13.00	Residential	Automobile & Light Truck		Bicycle	Heavy Truck Trailer	Gravel Screen Parking	
		Minimum	Maximum			Required	Notes
13.19	Laundry room			None	None	Allowed	N/A
13.20	Live-work flex unit	Number required for work unit plus number required for the dwelling unit		None	None	Allowed	Dependent upon use
13.21	Lodging house	1/2 rented bedroom plus number required for operator's residence		3 SPACES	None	Allowed	2C
13.22	Manufactured home (single-family dwelling)	2/dwelling unit		None	None	Allowed	2H
13.23	Manufactured home park	2 for office and laundry building; plus number required for each unit		None	None	Allowed	2C
13.24	Motel	0.9/rental room; plus 1/960 sf of public meeting and restaurant space		3 SPACES	1/100,000 sf GFA	Allowed	2C
13.25	Quadraplex	2/dwelling unit		None	None	Allowed	2H
13.26	Ranch (Greater than 5 acres)	1/1,000 sf GFA		None	None	Allowed	2G
13.27	Ranchette (>1 acre & <5 acres)	2/dwelling unit		None	None	Allowed	2G
13.28	Rooming house	1/2 rented bedroom plus number required for operator's residence		3 SPACES	None	Allowed	2C
13.30	Single-family attached dwelling (atrium, patio, townhouse)	2/dwelling unit		None	None	Allowed	2H
13.31	Single-family detached dwelling	2/dwelling unit		None	None	Allowed	2H
13.32	Swimming pool, game court (non-commercial)			None	None	Allowed	2H
13.33	Triplex	2/dwelling unit		None	None	Allowed	2H

14.00	Sales, Retail & Wholesale	Automobile & Light Truck		Bicycle	Heavy Truck Trailer	Gravel Screen Parking	
		Minimum	Maximum			Required	Notes
14.01	Adult book store	1/360 sf GFA	1/250 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
14.02	Bakery	1/360 sf GFA	1/250 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
14.03	Book store	1/360 sf GFA	1/250 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
14.04	Boutique	1/360 sf GFA	1/250 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
14.05	Cafeteria	1/144 sf GFA	1/100 sf GFA	NOTE 3	1/100,000 sf GFA	Not Allowed	2C
14.07	Coin-operated vending machines (indoor)	None	None	None	None	Allowed	2C
14.08	Convenience store	1/475 sf GFA	1/300 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
14.09	Convenience store with gas pumps	1/360 sf GFA of building, not counting spaces at the pumps	1/250 sf GFA of building; not counting spaces at the pumps	3 SPACES	1/50,000 sf GFA	Allowed	2C
14.095	Corner Store	1/500 sf GFA	1/350 sf GFA	NOTE 3	None	Allowed	2C
14.10	Delicatessen	1/144 sf GFA	1/100 sf GFA	NOTE 3	None	Allowed	2C

14.00	Sales, Retail & Wholesale	Automobile & Light Truck		Bicycle	Heavy Truck Trailer	Gravel Screen Parking	
		Minimum	Maximum			Required	Notes
14.12	Farm supply store	1/360 sf GFA	1/250 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
14.13	Feed dealer	1/720 sf GFA	1/500 sf GFA	3 SPACES	1/50,000 sf GFA	Allowed	2C
14.14	Flea market (indoor)	1/360 sf GFA	1/250 sf GFA	NOTE 3	None	Allowed	2C
14.15	Flea market (outdoor)	1.8/food vendor stall plus 1/other vendor stall (not counting stall space)	2/food vendor stall plus 1/other vendor stall (not counting stall space)	NOTE 3	None	Allowed	2C
14.16	Flower shop	1/360 sf GFA	1/250 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
14.17	Grocery	1/360 sf GFA	1/250 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
14.18	Hobby store	1/360 sf GFA	1/250 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
14.19	Home improvement center	1/360 sf GFA	1/250 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
14.20	Ice cream parlor	1/144 sf GFA	1/100 sf GFA	NOTE 3	None	Allowed	2C
14.21	Material sales (building & construction)	1/720 sf GFA of buildings and roofed structures	1/500 sf GFA of buildings and roofed structures	NOTE 3	1/50,000 sf GFA of buildings and roofed structures	Allowed	2C
14.22	Music store	1/360 sf GFA	1/250 sf GFA	NOTE 3	None	Allowed	2C
14.23	Newspaper printing facility	1/2700 sf GFA	1/1,500 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
14.24	Nursery, greenhouse	1/720 sf GFA	1/500 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
14.25	Other retail establishment (high-volume)	1/360 sf GFA	1/250 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
14.26	Other retail establishment (low-volume)	1/360 sf GFA	1/250 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
14.27	Other wholesale establishment (high-volume)	1/2700 sf GFA	1/1,500 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
14.28	Other wholesale establishment (low-volume)	1/2700 sf GFA	1/1,500 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
14.29	Package liquor store	1/360 sf GFA	1/250 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
14.30	Pawn shop	1/360 sf GFA	1/250 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
14.31	Pet shop (including grooming)	1/360 sf GFA	1/250 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
14.32	Print & copy shop	1/360 sf GFA	1/250 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
14.33	Produce stand	1/360 sf GFA	1/250 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
14.34	Restaurant (drive-in or walk-up)	1/144 sf GFA	1/100 sf GFA	NOTE 3	None	Not Allowed	2C
14.35	Restaurant (sit down)	1/144 sf GFA	1/100 sf GFA	NOTE 3	None	Allowed	2C
14.36	Shopping center, community	1/288 sf GFA	1/200 sf GFA	NOTE 3	1/50,000 sf GFA	Not Allowed	2C
14.37	Shopping center (regional)	1/288 sf GFA	1/200 sf GFA	NOTE 3	1/50,000 sf GFA	Not Allowed	2C
14.38	Snow cone, shaved ice stand or trailer	1/360 sf GFA	1/250 sf GFA	None	1/50,000 sf GFA	Not Allowed	2C

14.00	Sales, Retail & Wholesale	Automobile & Light Truck		Bicycle	Heavy Truck Trailer	Gravel Screen Parking	
		Minimum	Maximum			Required	Notes
14.39	Specialty shop	1/360 sf GFA	1/250 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
14.40	Sporting goods store	1/360 sf GFA	1/250 sf GFA	NOTE 3	1/50,000 sf GFA	Allowed	2C
14.41	Supermarket	1/360 sf GFA	1/250 sf GFA	NOTE 3	1/50,000 sf GFA	Not Allowed	2C
14.42	Superstore	1/360 sf GFA	1/250 sf GFA	NOTE 3	1/50,000 sf GFA	Not Allowed	2C
14.43	Warehouse club	1/360 sf GFA	1/250 sf GFA	NOTE 3	1/50,000 sf GFA	Not Allowed	2C

15.00	Signs	Automobile & Light Truck		Bicycle	Heavy Truck Trailer	Gravel Screen Parking	
		Minimum	Maximum			Required	Notes
15.01	On-premise advertising	None	None	None	None	Allowed	N/A
15.02	Off-premise advertising	None	None	None	None	Allowed	N/A

16.00	Temporary Uses	Automobile & Light Truck		Bicycle	Heavy Truck Trailer	Gravel Screen Parking	
		Minimum	Maximum			Required	Notes
16.01	Amusement rides, park	NOTE 1	NOTE 1	None	1/100,000 sf of gross outdoor & indoor rec. areas	Allowed	2E
16.02	Borrow pit (related to construction operations)	None	None	None	None	Allowed	2E
16.025	Carnival	1/1,440 sf of gross outdoor and indoor rec areas	1/1,000 sf of gross outdoor and indoor rec areas	None	1/100,000 sf of gross outdoor and indoor rec areas	Allowed	2E
16.03	Christmas tree stand	1/360 sf GFA of product display/storage	1/250 sf GFA of product display/storage	None	None	Allowed	2E
16.04	Circus	1/1,440 sf of gross outdoor and indoor rec. areas	1/1,000 sf of gross outdoor & indoor rec. areas	None	1/100,000 sf of gross outdoor & indoor rec. areas	Allowed	2E
16.05	Concrete mixing or batching plant	None	None	None	None	Allowed	2E
16.06	Firewood sales	1/1,440 sf of gross storage and sales area	1/1,000 sf of gross storage and sales areas	None	None	Allowed	2E
16.07	Garage sales	None	None	None	None	Allowed	2E
16.08	Mobile office/storage unit (related to const operations)	None	None	None	None	Allowed	2E
16.09	Mobile office/storage unit (related to sales or rental)	1/576 sf GFA	1/400 GFA	None	None	Allowed	2E
16.10	Model dwelling	1.8/unit	2/unit	None	None	Allowed	2E

16.00	Temporary Uses	Automobile & Light Truck		Bicycle	Heavy Truck Trailer	Gravel Screen Parking	
		Minimum	Maximum			Required	Notes
16.11	Carnival	1/1,440 sf of gross outdoor and indoor rec. areas	1/1,000 sf of gross outdoor & indoor rec. areas	None	1/100,000 sf of gross outdoor & indoor rec. areas	Allowed	2E
16.115	Outdoor Sporting Events	Note 1	None	None	None	Allowed	2E
16.12	Pumpkin stand/other temporary sales	1/300 sf GFA of product display/storage	1/250 sf GFA of product display/storage	None	None	Allowed	2E
16.13	Recycling collection facility (small)	None	None	None	None	Allowed	2E
16.13	Sales stands (ranch & farm products)	None	None	None	None	Allowed	2E
16.17	Tents (special events)	1/360 sf GFA of product display/storage	1/250 sf GFA of product display/storage	None	None	Allowed	2E
16.18	Yard sale	None	None	None	None	Allowed	2E

17.00	Towers & Related Structures	Automobile & Light Truck		Bicycle	Heavy Truck Trailer	Gravel Screen Parking	
		Minimum	Maximum			Required	Notes
17.01	Amateur & CB radio stations (federally licensed)	None	None	None	None	Allowed	N/A
17.02	Cellular telecommunication antenna, facility-mounted	None	None	None	None	Allowed	N/A
17.03	Cellular telecommunication antenna, ground-mounted	None	None	None	None	Allowed	2C
17.04	Cellular telecommunication antenna, roof-mounted	None	None	None	None	Allowed	N/A
17.05	Radio broadcasting antenna	None	None	None	None	Allowed	N/A
17.06	Radio receiving station (residential-type)	None	None	None	None	Allowed	N/A
17.07	Satellite receiving dish, antenna	None	None	None	None	Allowed	N/A
17.08	Solar conversion systems	None	None	None	None	Allowed	N/A
17.09	Television broadcasting antenna	None	None	None	None	Allowed	N/A
17.10	Television receiving station (residential-type)	None	None	None	None	Allowed	N/A
17.11	Wind-driven electrical generator, pump	None	None	None	None	Allowed	N/A

18.00	Transportation Related Uses	Automobile & Light Truck		Bicycle	Heavy Truck Trailer	Gravel Screen Parking	
		Minimum	Maximum			Required	Notes
18.01	Airpad	NOTE 1	NOTE 1	None	NOTE 1	Subject to Application	2F
18.02	Airport	NOTE 1	NOTE 1	NOTE 3	NOTE 1	Subject to Application	2F
18.03	Auxiliary rail facilities	None	None	None	None	Subject to Application	2F

18.00	Transportation Related Uses	Automobile & Light Truck		Bicycle	Heavy Truck Trailer	Gravel Screen Parking	
		Minimum	Maximum			Required	Notes
18.04	Auxiliary tracks	None	None	None	None	Subject to Application	2F
18.05	Diesel maintenance facility	None	None	None	None	Subject to Application	2F
18.06	Heliport	NOTE 1	NOTE 1	None	NOTE 1	Subject to Application	2F
18.07	Helistop	NOTE 1	NOTE 1	None	NOTE 1	Subject to Application	2F
18.08	Interlocking tower	None	None	None	None	Subject to Application	2F
18.09	Intermodal facility	NOTE 1	NOTE 1	NOTE 3	NOTE 1	Subject to Application	2F
18.10	Motor carrier terminal	NOTE 1	NOTE 1	NOTE 3	NOTE 1	Subject to Application	2F
18.11	Passenger station	NOTE 1	NOTE 1	None	NOTE 1	Subject to Application	2F
18.12	Railroad R.O.W.	None	None	None	None	Subject to Application	2F
18.13	Railroad repair shop	None	None	None	None	Subject to Application	2F
18.14	Railroad spur tracks	None	None	None	None	Subject to Application	2F
18.15	Railyard	None	None	None	None	Subject to Application	2F
18.16	Transportation terminal, Type A	NOTE 1	NOTE 1	NOTE 3	NOTE 1	Subject to Application	2F
18.17	Transportation terminal, Type B	NOTE 1	NOTE 1	NOTE 3	NOTE 1	Subject to Application	2F

19.00	Utility & Miscellaneous Governmental Facilities	Automobile & Light Truck		Bicycle	Heavy Truck Trailer	Gravel Screen Parking	
		Minimum	Maximum			Required	Notes
19.01	Communication utility facility	NOTE 1	NOTE 1	NOTE 3	None	Subject to Application	2F
19.03	Governmental use, building	Number required for specific use(s) in this Chart	Number required for specific use(s) in this Chart	Number required for specific use(s) in this Chart	Number required for specific use(s) in this Chart	Subject to Application	2F
19.04	Major utility facility	NOTE 1	NOTE 1	NOTE 3	None	Subject to Application	2F
19.05	Minor utility facility	None	None	None	None	Subject to Application	2F

19.00	Utility & Miscellaneous Governmental Facilities	Automobile & Light Truck		Bicycle	Heavy Truck Trailer	Gravel Screen Parking	
		Minimum	Maximum			Required	Notes
19.06	Resource recovery plant	None	None	None	None	Subject to Application	2F
19.07	Sanitary landfill	None	None	None	None	Subject to Application	2F
19.08	Stormwater retention basin (public/private)	None	None	None	None	Subject to Application	2F
19.09	Utility storage yard	None	None	None	None	Subject to Application	2F
19.10	Water & wastewater utility facility	NOTE 1	NOTE 1	NOTE 3	None	Subject to Application	2F

NOTE 1: TO BE DETERMINED BY THE ZONING ADMINISTRATOR

NOTE 2: FOR SPECIFIC REQUIREMENTS BASED ON USE/ZONE CRITERIA FOR SECTION 20.14.080:

A. Office, Educational or Institutional less than or equal to 5000 SF building:

Gravel/screenings surfaced parking areas may be incorporated for the required parking reserved for use by employees and staff of in-store retail or Professional offices and for required parking where on-site ponding (see Section 20.14.080.C.4) or permanent desilting basins are provided. In no case shall gravel/screening parking exceed 50% of the total required parking.

The perimeter of any gravel or screenings parking and drives areas shall be delineated by edging, curbing, abutting hard surfaces or other method as approved by the city manager or designee; and signage shall be installed indicating "Parking For Employees, Staff, and/or Overflow Parking Only".

B. Commercial/Manufacturing/Warehousing/Storage/Construction Yards/and High Traffic Uses:

Gravel/screenings surfaces may be incorporated for employee parking, for the storage users of truck trailers, storage containers, equipment, supplies, materials, motor vehicles or recreational vehicles which are part of the business function of the facility or site; including transport drop-offs and stock-in-trade.

All required parking for visitors, customers, employees, or patrons shall be hard surfaced.

The perimeter of any gravel or screenings parking and drives areas shall be delineated by edging, curbing, abutting hard surfaces or other method as approved by the city manager or designee; and signage shall be installed indicating "Overflow Parking Only" or as appropriate.

All access drives to required parking shall be hard surfaced.

All Loading Docks and all other loading areas shall be hard surfaced.

C. Recreation, Amusement, and Entertainment:

For outdoor facilities, gravel/screenings surfaces may be incorporated for required parking in accordance with the attached table (Section 20.14.080.C). For indoor facilities, gravel surface parking areas may be incorporated for required parking where on-site ponding or permanent desilting basins are provided.

Gravel/screenings surfaces may be incorporated for the storage of truck trailers, storage containers, equipment, supplies, materials, recreational vehicles that are part of the function of the facility.

The perimeter of any gravel or screenings parking and drives areas shall be delineated by edging, curbing, abutting hard surface or other method as approved by the city manager or designee.

All access drives to required hard surfaced parking shall be hard surfaced.

D. Temporary Uses:

Gravel/screenings surfaces may be incorporated for all required parking subject to review, approval, and conditions by the city manager or designee.

Temporary uses with no parking requirements (i.e. construction areas, etc.) are exempt from parking surface requirements.

The perimeter of any gravel or screenings parking and drive areas shall be delineated by edging, curbing, or abutting hard surface or other method as approved by the city manager or designee.

E. Utility, Miscellaneous and Governmental Facilities:

Gravel/screenings surfaces may be incorporated for required and/or excess parking subject to review, approval, and conditions by the city manager or designee.

Temporary uses with no parking requirements (construction areas, etc) are exempt from parking surface requirements.

Any gravel or screenings parking areas shall be delineated by edging, curbing, or abutting hard surface or other method as approved by the city manager or designee.

F. Agricultural and related uses:

Gravel/screenings surfaces may be incorporated for all required parking including truck trailers, storage containers, equipment, supplies, materials, recreational vehicles which is part of the business function of the facility as well as personal vehicles of the living quarters on the premises.

G. Residential:

Gravel/screening surfaces may be incorporated for:

1. Required parking located at a distance no less than 20 feet from the front property line.
2. For required parking where on-site ponding (see Section 20.14.080.C.4) or permanent desilting basins are provided for the surface area of the gravel/screening parking area, and

The perimeter of any gravel or screenings parking areas shall be delineated by edging, curbing, abutting hard surfaces or other method as approved by the city manager or designee.

H. Non-Allowed Uses and Restrictions:

Gravel/screenings surfaces shall not be incorporated for either required or excess parking for motor vehicle sales except as allowed in other sections of this ordinance, for repair or dismantling uses, for storage of used drive train components other than tires, wheels or drive shafts, or for fueling or lubricating bays.

Gravel/screenings surfaces shall not be incorporated for required parking for hospital or medical treatment uses with buildings greater than or equal to five thousand square feet (5000 SF).

Gravel/screenings surfaces may be not be incorporated for required parking in excess of ninety-nine (99) spaces.

No authorizations herein shall supersede state or federal requirements, restrictions, rules, or regulations.

No parking is allowed on top of landscaping or areas not specifically designated for parking.

Note 3: When the minimum required automobile parking exceeds 60 spaces, 5% of the number required over 60 shall be added as required bicycle parking. This calculation shall be rounded up to the next whole number. The minimum number of bicycle spaces required regardless of the calculation shall be 3 and the maximum number of bicycle spaces required regardless of the calculation shall be 40.

Note 4: For accessory buildings, the minimum required spaces for warehouse use shall be 1/7,200 sf GFA and the maximum shall be 1/5,000 sf GFA; the minimum required spaces for office use shall be 1/250 sf GFA and the maximum shall be 1/125 sf GFA.

(Ord. No. 17442, § 54, 10-26-2010; Ord. No. 17560, § 12, 5-17-2011; Ord. No. 17567, § 3, 5-24-2011; Ord. No. 17577, § 10, 7-7-2011; Ord. No. 17869, §§ 2—4, 9-18-2012; Ord. No. 18218, § 4, 7-29-2014; Ord. No. 18241, § 4, 9-9-2014; Ord. No. 18244, § 4, 9-16-2014; Ord. No. 18371, §§ 1, 3, 6-16-2015; Ord. No. 18498, § 1, 5-3-2016; Ord. No. 19019, § 5, 1-7-2020; Ord. No. 019517, §§ 9, 10, 6-20-2023; Ord. No. 019734, § 4, 5-28-2025)

Title 21

SMART CODE

Chapters:

21.10	**General to All Plans**
21.20	**Reserved**
21.30	**New Community Plans**
21.40	**Infill Community Plans**
21.50	**Building Scale Plans**
21.60	**Enforcement and Penalty**
21.70	**Definitions of Terms**
21.80	**Tables**

Chapter 21.10

GENERAL TO ALL PLANS

Sections:

21.10.010 Authority.

21.10.020 Applicability.

21.10.030 Intent.

21.10.040 Process.

21.10.050 Warrants and variances.

21.10.060 Incentives.

21.10.010 Authority.

A. The adoption of this Title is authorized under Chapter 211 and Chapter 212 of the Texas Local Government Code.

B. The zoning regulations as established in this title have been made in accordance with a comprehensive plan for the purpose of promoting health, safety, morals and the general welfare of the city. They have been designed to lessen the congestion in the streets; to secure safety from fire, panic and other dangers; to provide adequate light and air; to prevent the overcrowding of land; to avoid undue concentration of population; to facilitate the adequate provision of transportation, water, sewerage, schools, parks and other public requirements. They have been made with reasonable consideration, among other things, for the character of the district and its peculiar suitability for particular uses, and with a view to conserving the value of buildings and encouraging the most appropriate use of the land throughout the city.

C. The city council on its own motion or on request may amend, supplement or change by ordinance, the regulations herein established. (Ord. 16945 § 2 (part), 2008)
(Ord. No. 17542, § 1, 4-26-2011)

21.10.020 Applicability.

A. The following general rules of construction shall apply to the regulations of this title.

1. The singular number includes the plural and the plural the singular, unless the context clearly indicates the contrary.

2. Words used in the present tense include the past and future tenses, and the future the present.

3. The word "shall" is always mandatory. The word "may" is permissive.

4. The word "building" or "structure" includes any part thereof, and the word "structure" includes the word "building."

5. Words and terms not defined herein shall be interpreted in accord with Merriam-Webster's Collegiate Dictionary, Tenth Edition.

6. Terms used throughout this title may be defined in Chapter 21.70, Definitions of Terms. Chapter 21.70 contains regulatory language that is integral to this title. In the event of conflicts between these definitions and those of the existing local land development codes, those of this title shall take precedence.

B. Title 19 (Subdivision) and Title 20 (Zoning) of the El Paso City Code ("Existing Local Land Development Codes") shall continue to be applicable to issues not covered by this title. The requirement for land studies are superseded by the regulating plan, as approved by city council, for new community plans and infill community plans. The landscaping provisions of this title shall take precedence over similar provisions in Title 18, Sections 18.46.060, 18.46.080, 18.46.090, 18.46.140 and 18.46.150, Alternative Compliance. (Ord. 16945 § 2 (part), 2008)
(Ord. No. 17542, § 2, 4-26-2011)

21.10.030 Intent.

The intent and purpose of this title is to enable, encourage and qualify the implementation of the following policies:

A. The region.

1. The region should retain its natural infrastructure and visual character derived from topography, Chihuahuan Desert habitat, farmlands, riparian corridors, arroyos and mountains.

2. New development should be organized in the patterns of Clustered Land Development (CLD), Traditional Neighborhood Development (TND), or Regional Center Development (RCD) as defined in this title.

3. Affordable housing should be distributed throughout the region to match job opportunities and to avoid concentrations of poverty.

4. Transportation corridors should be planned and reserved in coordination with land use.

5. Green corridors should be used to define and connect the urbanized areas.

6. The region should include a framework of transit, pedestrian, and bicycle systems that provide alternatives to the automobile.

7. Chapter 21.40 of this title is most appropriate for application in the areas including downtown, transit corridors, future TODs and previously urbanized mixed use centers.

B. The community.

1. TNDs and regional centers should be compact, pedestrian-oriented and mixed use.

2. TNDs and regional centers should be the preferred pattern of development and that districts specializing in a single use should be the exception.

3. Ordinary activities of daily living should occur within walking distance of most dwellings, allowing independence to those who do not drive.

4. Interconnected networks of thoroughfares should be designed to disperse and reduce the length of automobile trips.

5. Within neighborhoods, a range of housing types and price levels should be provided to accommodate diverse ages and incomes.

6. Appropriate building densities and land uses should be provided within walking distance of transit stops.

7. Civic, institutional, and commercial activity should be embedded in downtowns, not isolated in remote single-use complexes.

8. Schools should be sized and located to enable children to walk or bicycle to them.

9. A range of open spaces including parks, plazas, and playgrounds should be distributed within neighborhoods and downtowns.

C. The transect.

1. Communities should provide meaningful choices in living arrangements as manifested by distinct physical environments.

2. The transect zone descriptions on Table 1 shall constitute the intent of this title with regard to the general character of each of these environments.

3. The transect zones' characteristics, as set forth in this title, were determined through a process of public hearing with approval by the city council. Therefore, since these transect zones have been properly incorporated into this title, projects within SmartCode Zoning districts that require no variances shall be processed administratively without further council approval.

D. The block and the building.

1. Buildings and landscaping should contribute to the physical definition of thoroughfares as civic places.

2. Development should adequately accommodate automobiles while respecting the pedestrian and the spatial form of public areas.

3. The design of streets and buildings should reinforce safe environments, but not at the expense of accessibility.

4. Architecture and landscape design should grow from local climate, topography, history, and building practice.

5. Buildings should provide their inhabitants with a clear sense of geography and climate through energy efficient methods.

6. Civic buildings and public gathering places should be provided as locations that reinforce community identity and support self-government.

7. Civic buildings should be distinctive and appropriate to a role more important than the other buildings that constitute the fabric of the city.

8. The preservation and renewal of historic buildings should be facilitated, to affirm the continuity and evolution of society.

9. The harmonious and orderly evolution of urban areas should be secured through form-based codes. (Ord. 16945 § 2 (part), 2008)
(Ord. No. 17542, § 3, 4-26-2011)

21.10.040 Process.

A. Any property to be developed under this title must be part of an approved new community

plan or an infill community plan as defined and set forth in Chapter 21.30 or Chapter 21.40 of this title respectively.

B. Any property to be developed under this title must be first zoned "SmartCode Zone". The rezoning application shall include the following:

1. A site plan drawn to scale in black and white, and not less than eight and one-half inches by eleven inches and not more than twenty-four inches by thirty-six inches, showing the boundaries of the property proposed for rezoning, names of streets immediately adjacent to the property proposed for rezoning, the north point, the legal description of the property proposed for rezoning and the amount of land included. When over eight and one-half inches by eleven inches, the drawing shall be on paper suitable for reproduction;

2. A proposed regulating plan for the land being rezoned that complies with this title, consisting of one or more maps showing the following:

a. For new community plans, regulating plans designate the precise location of

(1) transect zones (Section 21.30.040);

(2) Civic Zones, including civic spaces and Civic Buildings (Section 21.30.050);

(3) Special Districts, if any (Section 21.30.060);

(4) Thoroughfare network and block layout (Section 21.30.070);

(5) Special requirements, if any (Section 21.30.090).

b. For infill community plans, regulating plans designate the precise location of:

(1) transect zones (Section 21.40.030);

(2) Civic Zones, including civic spaces and Civic Buildings (Section 21.40.040);

(3) Special Districts, if any (Section 21.40.050);

(4) thoroughfare network, existing or planned (Table 3A, Table 3B);

(5) Special Requirements, if any (Section 21.40.070).

3. Submittals of new community plans and infill community plans shall also include additional information required by this title, such as:

a. Identification of pedestrian sheds and community types;

b. Requests for warrants or variances, if any (Section 21.10.050);

c. Proof of notice of proposed application to any recognized neighborhood association required to receive notice pursuant to Chapter 2.102 of the City Code.

4. The process and procedure once an application is submitted shall be in accordance with the provisions of Article VI of Title 20, Zoning, Chapter 20.04, of the City Code, except that the application requirements specified in Section 21.10.040 B. shall supersede the application requirements stated in Article VI of Section 20.04.380, Zoning.

C. Once the property is rezoned to SmartCode Zone (SCZ), the property owner is authorized to proceed under Chapters 21.30 and 21.40, whichever is applicable, and Chapter 21.50 under this title. El Paso City Council, hereby creates a Consolidated Review Committee (CRC) comprised of a designated member or designated alternate member from each city department or other agency represented by the development coordinating committee. The CRC shall be responsible for approving adjustments to new community plans as defined in Chapter 21.30 or infill community plans as defined in Chapter 21.40 of this title and approving building scale plans as defined in Chapter 21.50 of this title. Building scale plans shall not be approved unless a new community plan or an infill community plan for the property has been approved. An owner may appeal a decision of the CRC to the city council.

D. Once the property owner receives approval of a preliminary building scale plan from the CRC (see Section 21.50.010), the property owner must comply with the provisions of Title 19 Subdivisions to receive plat approval, provided that any provisions concerning platting requirements that are specifically addressed in this title, shall take precedence over similar requirements in Title 19. Prior to the submission of any plat, the property to be developed under this title must be part of an approved preliminary building scale plan. When reviewing a plat submitted in compliance with the provisions of this title, to include approval of the

building scale plan, the city plan commission shall determine whether the preliminary building scale plans were approved by the CRC and whether the plat provisions contained in Title 19 which are not addressed in this title have been complied with. The city plan commission shall have no authority over the building scale plans other than to determine whether such preliminary plans comply with both Title 21 and Title 19, provided that where Title 19 conflicts with a specific provision under this title, addressing the same issue, the standard or requirement of this title shall prevail.

1. Applications for plat approval under this title may request to reduce the scope of, or eliminate, the Traffic Impact Analysis requirement of Title 19. The city manager or designee, upon review of such request, may modify this requirement if the applicant can adequately demonstrate that the new community plan or infill community plan will not necessitate street infrastructure improvements to the adjacent street network or neighborhoods.

E. An interim plat may be approved without reflecting the regulating plan provided that the plat contains the following plat note: "This land is zoned SmartCode and a regulating plan has been approved. Prior to the issuance of any city permits, a plat reflecting the regulating plan must be approved and recorded.

F. Should a violation of an approved new community regulating plan, infill regulating plan or building scale plan occur during construction, or should any construction, site work, or development be commenced without such an approved plan, the city engineer or designee shall require the owner to stop, remove, and/or mitigate the violation. (Ord. 16945 § 2 (part), 2008)
(Ord. No. 17542, § 4, 4-26-2011; Ord. No. 17903, § 1, 11-6-2012)

21.10.050 Warrants, variances, and adjustments.

A. There shall be three types of modifications from the requirements of this title: Warrants, and variances, and adjustments.

B. A warrant is a modification of a standard that may be granted administratively by the CRC only where specifically stated within Title 21 as allowable and may be approved only if the applicant has complied with criteria contained in Title 21 for granting of the modification. Where no specific criteria for granting of the modification is specified, a warrant may be granted only for a dimensional deviation of less than ten percent of the specified standard.

C. A variance allows a modification of a requirement under this title, provided that the modification is not contrary to the public interest and, due to special conditions, a literal enforcement of the ordinance would result in unnecessary hardship, and so that the spirit of the ordinance is observed and substantial justice is done. "Unnecessary hardship" means a hardship by reason of exceptional shape of a lot, exceptional topographic conditions, or other exceptional physical conditions of a parcel of land. Unnecessary hardship shall not include personal or financial hardship or any other hardship that is self-imposed. Requests for variances shall be heard by the zoning board of adjustment in accordance with the provisions of Chapter 2.16 of the City Code.

D. Adjustments to regulating plans within approved SmartCode Zones will be authorized administratively by the CRC if the adjusted regulating plan complies with this title, its tables, and all the following criteria are met:

1. Community types may not be changed through the adjustment process;

2. Within each community type, revisions to transect zone boundaries are permitted provided the adjusted regulating plan:

a. Does not conflict with standards for allocation of transect zones in Table 14a;

b. Does not increase the percentage of land designated as a special district above the twenty percent maximum allowed under this title;

c. Does not reduce the percentage of land designated on the approved regulating plan as civic spaces below the five percent minimum required under this title;

d. Does not create increased conflicts with adjoining land uses outside the SmartCode Zone. (Ord. 16945 § 2 (part), 2008)
(Ord. No. 17542, § 5, 4-26-2011)

21.10.060 Incentives.

A. Applications under this title shall receive highest priority review status by the CRC, zoning board of adjustment, city plan commission, and city council ahead of other applications that were eligible to use this title but elected not to do so;

B. All application or filing fees shall be waived for applications under this title;

C. City shall accept dedication and maintenance of civic space (See Table 13) as parks and open space. (Ord. 16945 § 2 (part), 2008)
(Ord. No. 17542, § 6, 4-26-2011)

Chapter 21.20

RESERVED

Chapter 21.30

NEW COMMUNITY PLANS

Sections:

21.30.010 Instructions.
21.30.020 Sequence of community design.
21.30.030 Community types.
21.30.040 Transect zones.
21.30.050 Civic zones.
21.30.060 Special districts.
21.30.070 Thoroughfare standards.
21.30.080 Density calculations.
21.30.090 Special requirements.
21.30.100 Environmental standards.

21.30.010 Instructions.

A. For land areas containing a minimum of forty contiguous acres. the provisions of this chapter and this title in general shall be available upon request for rezoning to a SmartCode Zone by the applicant and approval by city council. This rezoning shall be subject to the same requirements of any rezoning within the city plus the application applicant requirements in Section 21.10.040 A. of this title.

B. New community plans must conform to the comprehensive plan, which may be amended by approval of the city council.

C. Upon rezoning of an area as a SmartCode Zone, all parcels within the zone shall be marked as such on the zoning map of El Paso. Within the SmartCode Zone. the approved regulating plan and this title shall become the exclusive and mandatory zoning regulation, and its provisions, as altered by approved warrants, variances, and adjustments, and those of the subsequently approved building scale plans, shall be applied in their entirety.

D. New community plans may be prepared by an owner or by the planning division.

E. New community plans shall include a regulating plan consisting of one or more maps showing the following, and demonstrating their compliance with the standards described in this chapter.

1. transect zones;
2. Civic Zones, including civic spaces and Civic Buildings;
3. Special Districts, if any;
4. thoroughfare network and block layout;
5. Special requirements, if any

F. New community plan submittals shall also include additional information required by this chapter, such as:

1. Identification of pedestrian sheds and community types;
2. Density calculations;
3. Requests for warrants or variances, if any.

(Ord. 16945 § 2 (part), 2008)
(Ord. No. 17378, § 1, 8-24-2010; Ord. No. 17441, § 1, 10-26-2010; Ord. No. 17542, § 7, 4-26-2011)

21.30.020 Sequence of community design.

A. The site shall be overlaid with one or several pedestrian sheds, responding to existing conditions, adjacent developments, connecting thoroughfares, and natural features. The pedestrian sheds shall overlap to the minimum extent possible and cover the maximum reasonable portion of the site. The site may be smaller than its pedestrian shed.

B. Each pedestrian shed shall be designated with a community type in accordance with Section 21.30.030. The pedestrian sheds shall determine the approximate boundaries and centers of the communities.

C. Transect zones shall be allocated by pedestrian shed according to the applicable community type and in accordance with Table 14a.

D. Civic zones shall be assigned according to Section 21.30.050.

E. The thoroughfare network shall be laid out according to Section 21.30.070.

F. Density shall be calculated according to Section 21.30.080.

G. Any remnants of the site outside the pedestrian sheds shall be assigned to Transect Zones T1 through T3, civic space or special districts.

H. Airport new community plans shall include all of the above requirements in accordance with Table 16.

I. Airport new community plans shall include a combination of airport special districts and T1. (Ord. 16945 § 2 (part), 2008)
(Ord. No. 17378, § 1, 8-24-2010)

21.30.030 Community types.

A. Clustered land development (CLD).

1. A clustered land development (CLD) shall be structured by one standard pedestrian shed and shall consist of no fewer than thirty acres and no more than eighty acres.

2. A CLD shall include transect zones as allocated on Table 14a. A minimum of fifty percent of the community shall be permanently allocated to a T1 Natural Zone and/or T2 Rural Zone.

B. Traditional neighborhood development (TND).

1. A traditional neighborhood development (TND) shall be structured by one standard or linear pedestrian shed and shall be no fewer than eighty acres and no more than one hundred sixty acres.

2. A TND shall include transect zones as allocated on Table 14a.

3. Larger sites shall be designed and developed as multiple communities, each subject to the individual transect zone requirements for its type as allocated on Table 14a. The simultaneous planning of adjacent parcels is encouraged.

4. In the T-4 and T4-O General Urban Zones, a minimum residential mix of three building disposition types (none less than twenty percent) shall be required, selected from Table 9.

C. Regional center development (RCD).

1. A regional center development (RCD) shall be structured by one long pedestrian shed or linear pedestrian shed and shall consist of no fewer than eighty acres and no more than six hundred forty acres.

2. An RCD shall include transect zones as allocated on Table 14a.

3. For larger sites, an RCD may be adjoined without buffer by one or more TNDs, each subject to the individual transect zone requirements for TND as allocated on Table 14a. The simultaneous planning of adjacent parcels is encouraged.

D. Transit-oriented development (TOD) overlay.

1. Any TND or RCD on an existing or projected rail or bus rapid transit (BRT) network may be designated in whole or in part with a TOD overlay and may include, at a maximum in a general urban setting, an allocation of transect zones per pedestrian shed, building height, and density as follows: T3 (sub-urban zone) sixty percent, two and one-half stories, twenty dwelling units per acre; T4 (general urban zone) fifty percent, three stories, thirty-five dwelling units per acre maximum; T4-O (general urban zone-open) forty percent, four stories, fifty dwelling units per acre maximum; T5 (urban center zone) thirty percent, five stories, 70 dwelling units per acre maximum; T5O *urban center zone-open) thirty percent, eight stories, one hundred dwelling units per acre maximum.

2. A proposed TOD overlay shall be clearly indicated on a new community regulating plan and shall be subject to approval by the city council concurrently with approval of, or amendment to, a SmartCode Zone.

E. Airport resort development (ARD).

1. An airport resort development (ARD) shall be structured by one standard or linear pedestrian shed and shall be no fewer than forty acres and no more than one hundred sixty acres.

2. An ARD shall include special districts as allocated on Table 16a.

3. Larger sites shall be designed and developed as multiple communities, each subject to the individual special district requirements for its type as allocated on Table 16a. The simultaneous planning of adjacent parcels is encouraged.

F. Airport employment development (AED).

1. An airport employment development (AED) shall be structured by one standard or

linear pedestrian shed and shall be no fewer than forty acres and no more than one hundred eighty acres.

2. An AED shall include special districts as allocated on Table 16a.

3. Larger sites shall be designed and developed as multiple communities, each subject to the individual special district requirements for its type as allocated on Table 16a. The simultaneous planning of adjacent parcels is encouraged. (Ord. 16945 § 2 (part), 2008)
(Ord. No. 17378, § 1, 8-24-2010; Ord. No. 17542, § 8, 4-26-2011; Ord. No. 17787, § 1, 5-15-2012)

21.30.040 Transect zones.

A. transect zones shall be assigned and mapped on each proposed new community regulating plan according to the percentages allocated on Table 14a for the proposed community type.

B. After approval into a SmartCode Zone by the city council, land in each transect zone may include any of the elements indicated for its T-Zone number throughout this title, in accordance with intent described in Table 1 and the metric standards summarized in Table 14. If transect zone boundaries are adjusted by the CRC in accordance with Section 21.10.050, the standards in this title will then apply to each transect zone as shown on the adjusted regulating plan. (Ord. 16945 § 2 (part), 2008)
(Ord. No. 17542, § 9, 4-26-2011)

21.30.050 Civic zones.

A. General.

1. Civic zones dedicated for public use shall be required for each new community plan and designated on the new community regulating plan as civic space (CS) or civic building (CB). Property designated as a civic zone must also be assigned to a transect zone.

2. Civic space zones are public sites permanently dedicated to open space.

3. Civic building zones are sites dedicated for buildings generally operated by not-for-profit organizations dedicated to culture. education, religion, government, transit and municipal parking, or for a use approved by the city council.

4. When a warrant is required by Table 14e, a civic zone may be permitted by warrant if it does not occupy more than twenty percent of a pedestrian shed, otherwise it is subject to the creation of a special district. See Section 21.30.060.

B. Civic zones specific to T1 and T2 zones.

1. Civic buildings and civic spaces within T1 natural and T2 rural zones shall be permitted only when approved by city council when the regulating plan is approved.

C. Civic space (CS) specific to T3—T6 zones.

1. Each pedestrian shed shall assign at least five percent of its urbanized area to civic space.

2. Civic spaces shall be designed as generally described in Table 13, and distributed throughout transect zones as described in Table 14e.

3. Those portions of the T1 natural zone that occur within a development parcel shall be part of the civic space allocation and shall conform to the civic space types specified in Table 13a or 13b.

4. Each pedestrian shed shall contain at least one main civic space. The main civic space shall be within eight hundred feet of the geographic center of each pedestrian shed, unless topographic conditions, pre-existing thoroughfare alignments or other circumstances prevent such location. A main civic space shall conform to one of the types specified in Table 13b, 13c, or 13d.

5. Within eight hundred feet of every lot in residential use, a civic space designed and equipped as a playground shall be provided. A playground shall conform to Table 13e.

6. Each civic space shall have a minimum of fifty percent of its perimeter enfronting a thoroughfare, except for playgrounds.

7. Parks may be permitted in transect zones T4, T4-O, T5, TSO, and T6 by warrant, provided that they meet the following criteria:

a. That the parks and recreation director approves such request; and

b. That the edges of the park be completely bounded by building frontages, like with squares.

D. Civic buildings (CB) specific to T3—T6 zones.

1. The owner shall covenant to construct a meeting hall or a third place in proximity to the main civic space of each pedestrian shed. Its corresponding public frontage shall be equipped with a shelter and bench for a transit stop.

2. One civic building lot shall be reserved for an elementary school. The school site may be within any transect zone. Any playing fields should be outside the pedestrian shed.

3. Reserved.

4. Civic building sites shall not occupy more than twenty percent of the area of each pedestrian shed.

5. Civic building sites should be located within or adjacent to a civic space, or at the axial termination of a significant thoroughfare.

6. Civic buildings shall be subject to the standards of Chapter 21.50.

7. Civic buildings may also be permitted within special districts.

E. Civic space (CS) specific to SD1—SD7 special districts.

1. Civic Spaces shall be designed as generally described in Table 13, and distributed throughout special districts as described in Table 16e.

2. Civic spaces may be permitted within special districts by right, but may not exceed fifty percent of the special district.

3. Playgrounds are not required in SD3—SD5 because of FAA limitations on residential.

4. AED pedestrian sheds shall assign at least two and one-half percent of their urbanized area to civic space.

5. ARD pedestrian sheds shall assign at least five percent of their urbanized area to civic space. Butterfield Trail Golf Club may contribute to the civic space requirement in an ARD. (Ord. 16945 § 2 (part), 2008)

(Ord. No. 17378, § 1, 8-24-2010; Ord. No. 17542, § 10, 4-26-2011; Ord. No. 17787, § 2, 5-15-2012; Ord. No. 17962, § 1, 3-5-2013)

21.30.060 Special districts.

A. Special district designations shall be assigned to areas that, by their intrinsic size, function, or configuration, cannot conform to the requirements of any transect zone, or combination of zones and shall be assigned transect zones, in accordance with the standard in Table 14, as an underlay.

B. Special districts that do not have provisions within this title (see Section 21.80.220, Table 16) shall be excluded from the SmartCode Zone and governed by the standards of the existing zoning.

C. Special districts shall not exceed twenty percent of the total net site area for each community type. Airport Special Districts and the Northwest Park Special District shall be excluded from this requirement.

D. Airport special districts shall only be available for new communities on El Paso International Airport properties.

E. Airport special districts shall be assigned and mapped on each airport community plan according to the percentages allocated on Table 16a.

F. An airport special district may include any of the elements indicated for its special district number throughout this title, in accordance with the metric standards summarized in Table 16.

G. Twenty years after the approval of a regulating plan, each special district, except the airport special districts, shall be automatically rezoned to the underlay transect zones. (Ord. 16945 § 2 (part), 2008)

(Ord. No. 17378, § 1, 8-24-2010; Ord. No. 17542, § 11, 4-26-2011; Ord. No. 17962, § 2, 3-5-2013)

21.30.070 Thoroughfare standards.

A. General.

1. Thoroughfares are intended for use by vehicular and pedestrian traffic and to provide access to lots and open spaces.

2. Thoroughfares shall generally consist of two parts: vehicular lanes and public frontages.

3. Thoroughfares shall be designed in context with the urban form and desired design speed

of the transect zones through which they pass. The public frontages of thoroughfares that pass from one transect zone to another shall be adjusted accordingly or, alternatively, the transect zone may follow the alignment of the thoroughfare to the depth of one lot, retaining a single public frontage throughout its trajectory.

4. Within the most rural zones (T1 and T2) pedestrian comfort shall be a secondary consideration of the thoroughfare. Design conflict between vehicular and pedestrian generally shall be decided in favor of the vehicle. Within the more urban transect zones (T3 through T6) pedestrian comfort shall be a primary consideration of the thoroughfare. Design conflict between vehicular and pedestrian movement generally shall be decided in favor of the pedestrian.

5. The thoroughfare network shall be designed to define blocks not exceeding the size prescribed in Table 14c and Table 16c. The perimeter shall be measured as the sum of lot frontage lines. Block perimeter at the edge of the development parcel shall be subject to approval by warrant, if the deviation allowed by the warrant is no more than twenty percent from the standard specified in Table 14c and Table 16c.

6. All thoroughfares shall terminate at other thoroughfares, forming a network. Internal thoroughfares shall connect wherever possible to those on adjacent sites. Culs-de-sac are explicitly discouraged and shall be subject to approval in T2 and T3 by warrant only where there are exceptional topographic conditions that do not allow through connections.

7. Each lot shall enfront a vehicular thoroughfare, except that twenty percent of the lots within each transect zone may enfront a passage. By warrant, lots within each transect zone that enfront both a passage and an *Ephemeral Stream* shall not be counted towards the twenty percent maximum.

8. Thoroughfares along a designated B-grid may be exempted by warrant from one or more of the specified public frontage or private frontage requirements, if at least one of the requirements specified in Tables 4A, 4B and 7 are met. See Table 4A and Table 7.

9. Reserved.

10. The standards for thoroughfares within special districts shall be determined by city council when the regulating plan is approved, except the airport special districts thoroughfare standards may be determined from Tables 3A, 3B, 4A, 4B and 4C.

B. Vehicular lanes.

1. Thoroughfares may include vehicular lanes in a variety of widths for parked and for moving vehicles, including bicycles. The standards for vehicular lanes shall be as shown in Table 3A.

2. A bicycle network consisting of bicycle trails, bicycle routes and bicycle lanes should be provided throughout as defined in Chapter 21.70, Definitions of Terms and allocated as specified in Table 14d. The community bicycle network shall be connected to existing or proposed regional networks wherever possible.

C. Public frontages.

1. General to all zones T1, T2, T3, T4, T4-0, T5, T50, T6 and special districts SDI, SD2, SD3, SD4, SD5, SD6, SD7.

a. The public frontage contributes to the character of the transect zone, and includes the types of sidewalk, curb, planter, bike lanes and street trees.

b. Public frontages shall be designed as shown in Table 4A and Table 4B and allocated within transect zones as specified in Table 14d and special districts as specified in Table 16d.

c. Within the public frontages, the prescribed types of public planting and public lighting shall be as shown in Table 4A, Table 4B, Table 5 and Table 6. The spacing may be adjusted by warrant to accommodate specific site conditions, if it is within a twenty percent deviation.

2. Specific to zones T1, T2, T3.

a. The public frontage shall include native trees of various species, naturalistically clustered, as well as understory.

b. The introduced landscape shall consist primarily of native species requiring minimal irrigation, fertilization and maintenance.

3. Specific to zones T4, T4-O, T5, T5O, T6.

a. The introduced landscape shall consist primarily of durable species tolerant of soil compaction.

4. Specific to zone T4.

a. The public frontage shall include trees planted in a regularly-spaced allee pattern of single or alternated species with shade canopies of a height that, at maturity, clears at least one story.

5. Specific to zones T4-O, T5, T5O, T6.

a. The public frontage shall include trees planted in a regularly-spaced allee pattern of single species with shade canopies of a height that, at maturity, clears at least one story. At retail frontages, the spacing of the trees may be irregular, to avoid visually obscuring the shopfronts. (Ord. 16945 § 2 (part), 2008)

(Ord. No. 17378, § 1, 8-24-2010; Ord. No. 17542, § 12, 4-26-2011; Ord. No. 17787, § 3, 5-15-2012; Ord. No. 17962, § 3, 3-5-2013)

21.30.080 Density calculations.

A. All areas of the new community plan regulating plan site that are not part of the T-1 Zone shall be considered cumulatively the net site area. The net site area shall be allocated to the various transect zones according to the parameters specified in Table 14a and the special districts according to the parameters specified in Table 16a.

B. Density shall be expressed in terms of housing units per acre as specified for the area of each transect zone by Table 14b. For purposes of density calculation, the transect zones include the thoroughfares but not land assigned to civic zones.

C. Reserved.

D. Within the percentage range shown on Table 14b for other functions, the housing units specified on Table 14b shall be exchanged at the following rates:

1. For lodging: Two bedrooms for each unit of net site area density;

2. For office or retail: One thousand square feet for each unit of net site area density.

3. Special districts are not required to exchange base residential density for other functions. Other functions within a special district is controlled by form metrics on Table 16.

E. The housing and other functions for each transect zone shall be subject to further adjustment at the building scale as limited by Table 10 and Table 11 and Section 21.50.090. (Ord. 16945 § 2 (part), 2008)

(Ord. No. 17378, § 1, 8-24-2010; Ord. No. 17542, § 13, 4-26-2011)

21.30.090 Special requirements.

A. A new community regulating plan may designate and upon designation shall enforce any of the following special requirements which, if approved, shall then be enforced at the building scale plan stage:

1. A differentiation of the thoroughfares as A-grid and B-grid. Buildings along the A-grid shall be held to the highest standard of this title in support of pedestrian activity. The frontages assigned to the B-grid shall not exceed thirty percent of the total length of frontages within a pedestrian shed. There is no limitation on the B-grid within SD5.

2. Designations for mandatory and/or recommended retail frontage requiring or advising that a building provide a shopfront at sidewalk level along the entire length of its private frontage. The shopfront shall be no less than seventy percent glazed in clear glass and shaded by an awning overlapping the sidewalk as generally illustrated in Table 7 and specified in Chapter 21.50. The first floor shall be confined to retail use through the depth of the second layer (Table 17d). Special districts that require retail frontage do not require retail use.

3. Designations for mandatory and/or recommended gallery frontage, requiring or advising that a building provide a permanent cover over the sidewalk, either cantilevered or supported by columns. The gallery frontage designation may be combined with a retail frontage designation.

4. Designations for mandatory and/or recommended arcade frontage, requiring or advising that a building overlap the sidewalk such that the first floor facade is a colonnade. The arcade frontage designation may be combined with a retail frontage designation.

5. A designation for coordinated frontage, requiring that the public frontage (Table 4A) and private frontage (Table 7) be coordinated as a single, coherent landscape and paving design.

6. Designations for mandatory and/or recommended terminated vista locations, requiring or advising that the building be provided with architectural articulation of a type and character that responds visually to the location, as approved by the CRC.

7. A designation for cross block passages, requiring that a minimum eight-foot-wide pedestrian access be reserved between buildings. (Ord. 16945 § 2 (part), 2008)
(Ord. No. 17378, § 1, 8-24-2010; Ord. No. 17542, § 14, 4-26-2011)

21.30.100 Environmental standards.

A. General.

1. Transect zones manifest a range of natural and urban conditions. In case of conflict, the natural environment shall have priority in the more rural zones (T1—T3) and the built environment shall have priority in the more urban zones (T4—T6).

a. Trees should be planted below the grade of the sidewalk and the street in structural cells with sufficient root space.

b. Rain gardens and bioswales should be installed to infiltrate runoff from parking lots, thoroughfares, plazas and other impervious surfaces.

c. Where vegetative solutions are not feasible, porous concrete or porous asphalt should be specified for sidewalks, parking lots, and plazas to infiltrate stormwater.

2. There shall be designated ephemeral streams, generating a stream buffer subject to a standard for crossing and protection of its riparian condition as specified below for each transect zone.

3. There shall be designated wetlands subject to a standard of restoration, retention, and mitigation as specified below for each transect zone.

B. Environmental contamination.

1. The level of contamination on Brownfield sites may impact and limit the ability to comply with all standards established under this title, although the form of a particular set of transects may still be appropriate. If the Texas Commission on Environmental Quality (TCEQ) or the Environmental Protection Agency (EPA) has placed environmental restrictions on a designated Brownfield site, then by warrant, the following modifications may be granted provided that such modifications are necessary and attributable solely to the environmental restrictions and would still allow for the Brownfield site to be developed under the remaining requirements of this title.

a. The acreage requirements of Section 21.30.030.

b. Removal of certain uses in Table 12.

c. Allocation of zones in Table 14a.

d. Block size requirements of Table 14c, specifically where contamination is contained.

C. Specific to zone T1, utility green space designation.

1. Within a T1 zone, the area shown as open space may be designated as utility green space for the purpose of protecting and conserving lands to:

a. Add to the existing open space system and enhance the ecological, hydrological, and recreational vitality of the existing Franklin Mountains and foothill areas;

b. Promote planning and growth that emphasizes sustainability in our built and natural environments;

c. Promote careful management to reduce environmental impacts to the water, waste water and stormwater systems in the community;

d. Protect healthy ecosystems through environmental management and measurement by:

(1) Reducing impervious cover that contributes to degradation of water resources;

(2) Reducing rainfall pollutant loads to streams and other water resources;

(3) Reducing potential pressure to encroach on utility resource buffer areas;

(4) Reducing soil erosion potential by reducing the amount of clearing and grading required;

(5) Promoting erosion and sediment control;

(6) Reducing capital cost of utility infrastructure;

(7) Reducing cost of stormwater management by concentrating runoff and reducing volumes;

e. Promote a high quality, sustainable utility system that conserves and protects land, watershed, wastewater, reclaimed water and water resources;

f. Optimize best practices in planning, engineering and management that will protect the environment; and

g. Protect the ecological and geological health and function of green space.

2. Where a utility green space is designated within a T1 zone, a conservation covenant may be required to provided further protection to the area.

3. In addition to allowing use of the land for water, wastewater, and stormwater utility systems, other passive recreational uses and activities customarily found in conserved natural areas are also permitted (such as, but not limited to, trail corridors and trailheads, scenic outlooks, and pedestrian walking and jogging paths). Notwithstanding the allowable uses and activities described in this section, the mandating restriction of uses and activities permitted on land within a utility green space designated within a T1 zone shall be as set forth in the regulating plan. Should the land also be covered by a conservation covenant, the conservation covenant shall enumerate the use(s) permitted and prohibited, shall detail how use of the land shall be authorized pursuant to this section, and shall include a management plan for maintenance, monitoring and enforcement of these use provisions. In no case shall a use not satisfying the general intent of these regulations be permitted as a provision of the conservation covenant.

4. Any property designated as utility green space within a T1 zone shall be subject to the development standards of the El Paso City Code as part of construction, reconstruction, or alteration of any permitted use, and any additional development standards as may be enumerated in the regulating plan.

5. Water, wastewater, and stormwater utility systems, for purposes of this section, shall mean the systems of the city as they may be constructed or now exist and may be improved, added to, or extended hereafter, there being included in such term all water, sewer and stormwater facilities now or hereafter owned or operated by the El Paso Water Utilities - Public Service Board, and including all real and personal property comprising any part of or used or useful in the operation of the water, waste water, and stormwater facilities of the city. Specific facilities shall include, but not be limited to, any facility or structure that stores, pumps, conveys, treats, or disposes of potable water, reclaimed water, wastewater, and/or stormwater and the associated residuals with the appropriate resource buffer zone. In addition, other public utility facilities which serve to distribute and transmit electrical power, gas and other essential service necessary to the water, waste water, and stormwater utility systems are also authorized.

6. Utility green space designated within a T1 zone shall not be considered a park or civic space, nor shall acceptance of a dedication and maintenance by the city be required.

D. Specific to zone T1, stormwater open space designation. Within a T1 zone, the areas shown as open space may be designated as stormwater open space where natural drainage is to be permitted to the extent reasonably possible to preserve the city's open spaces, greenways, arroyos, and wilderness areas. Stormwater open space may allow for passive recreational use, and may be considered a park or park/pond with dedication and mainte-

nance by the city. Notwithstanding any other provision of this section, stormwater open space shall permit necessary water, waste water, and stormwater utility systems.

E. Specific to zones T1, T2.

1. Within T1 zones and T2 zones, the encroachment and modification of natural conditions listed in Section 21.30.100 F.1. shall be limited according to applicable local, state and federal law.

2. The stream buffers for streams shall extend one hundred feet from each side of the centerline of the watercourse or the limits of the one-hundred-year floodplain, whichever is greater. Stream buffers shall be maintained free of structures or other modifications to the natural landscape, including agriculture. Thoroughfare crossings shall be permitted when approved by city council as part of the regulating plan.

3. Wetlands shall be retained and restored if in a degraded condition. Additional buffers shall be maintained at one hundred feet. Wetland buffers shall be maintained free of structures or other modifications to the natural landscape, including agriculture. Thoroughfare crossings shall be permitted only when approved by city council as part of the regulating plan.

F. Specific to zones T1, T2, T3.

1. Stormwater management on thoroughfares shall be primarily through retention and percolation, channeled by curbside swales.

G. Specific to zones T3, T4, T4-O. Native plant perennial landscapes should replace turf grass where possible and be very diverse. They should be placed lower than walkways, not mounded up.

H. Specific to zone T3.

1. Within T3 zones, the continuity of the urbanized areas shall be subject to the precedence of the natural environmental conditions in the categories below. The alteration of such conditions shall be limited according to local, state and federal law.

a. Surface waterbodies;

b. Protected wetlands;

c. Protected habitat;

d. Riparian corridors;

e. Purchased open space;

f. Conservation easements;

g Transportation corridors;

h. Areas residual to clustered land development (CLD);

i. Floodplain, including special flood hazard areas;

j. Steep slopes.

2. The stream buffer shall extend one hundred feet from each side of the centerline of the watercourse or the limits of the one-hundred-year floodplain, whichever is greater. Stream buffers shall be maintained free of structures, except that thoroughfare crossings may be permitted.

3. Wetlands shall be retained and restored if in degraded condition. Additional buffers shall be maintained at fifty feet. Buffers shall be free of structures or other modifications to the natural landscape. Thoroughfare crossings shall be permitted only when approved by city council as part of the regulating plan.

I. Specific to zone T4.

1. Within T4 zones, the continuity of the urbanized areas shall take precedence over the natural environmental conditions listed in Section 21.30.100 F.1. The alteration of such conditions shall be mitigated off-site.

2. The stream buffers shall extend fifty feet from each side of the centerline of the watercourse or the limits of the one-hundred-year floodplain, whichever is greater. Stream buffers and streams of all classes may be crossed by thoroughfares as required by the thoroughfare network.

3. Wetlands shall be retained and maintained free of structures or other modifications to the natural landscape. Thoroughfare crossings may be permitted.

J. Specific to zones T4-O, T5.

1. Within T4-O and T5 zones, the continuity of the urbanized areas shall take precedence over the natural environmental conditions listed in Section 21.30.100 F.1. The alteration of such conditions should be mitigated off-site.

2. The stream buffers shall extend twenty-five feet from each side of the centerline of the watercourse or the limits of the one-hundred year floodplain, whichever is greater, with the exception that stream buffers and streams of all classes may be embanked and crossed by thoroughfares as required by the thoroughfare network.

3. Wetlands may be modified if mitigated off-site at a two to one ratio. Thoroughfare crossings shall be permitted by right.

K. Specific to zones T5O, T6.

1. Within T5), T6 Zones, the continuity of the urbanized areas shall take precedence over the natural environmental conditions listed in Section 21.30.100 F.1. The alteration of such conditions shall not require off-site mitigation.

2. The stream buffers shall extend twenty-five feet from each side of the centerline of the watercourse or the limits of the one-hundred-year floodplain, whichever is greater, with the exception that stream buffers and streams of all classes may be embanked and crossed or enclosed by thoroughfares as required by the thoroughfare network.

3. Wetlands may be modified, not requiring off-site mitigation. Thoroughfare crossings shall be permitted by right.

L. Specific to zones T4, T4-O, T5, T5O, T6 and special districts SD3, SD4, SD5, SD7.

1. Stormwater management on thoroughfares and lots shall be primarily through underground storm drainage channeled by raised curbs, and there shall be no retention or detention required on the individual lot. (Ord. 16945 § 2 (part), 2008)

(Ord. No. 17542, § 15, 4-26-2011; Ord. No. 17787, § 4, 5-15-2012; Ord. No. 17903, § 2, 11-6-2012; Ord. No. 17962, § 4, 3-5-2013)

Chapter 21.40

INFILL COMMUNITY PLANS

Sections:

21.40.010 Instructions.
21.40.020 Infill community types.
21.40.030 Transect zones.
21.40.040 Civic zones.
21.40.050 Special districts.
21.40.060 Pre-existing conditions.
21.40.070 Special requirements.

21.40.010 Instructions.

A. Upon direction by city council, and in conformance with the comprehensive plan, the planning division may prepare, or have prepared on its behalf, infill community plans to guide further development infill community plans shall be prepared in a process of public consultation.

B. Infill community plans are intended to regulate, at minimum, at least five acres. The community type shall be based on existing conditions and intended evolution in the plan area.

C. Infill community plans shall include a regulating plan consisting of one or more maps showing the following, and demonstrating their compliance with the standards described in this chapter.

1. transect zones (Section 21.40.030);

2. Civic Zones, including civic spaces and Civic Buildings (Section 21.40.040);

3. Special districts, if any (Section 21.40.050);

4. A thoroughfare network, existing or planned (Table 3A, Table 3B);

5. Special requirements, if any (Section 21.40.070);

6. A landscape plan, if any;

7. A signage plan, if any;

8. A lighting plan, if any;

D. Infill community plan submittals shall also include additional information required by this chapter, such as:

1. Identification of pedestrian sheds and community types;

2. Requests for warrants or variances, if any.

E. Upon rezoning of an area as a SmartCode Zone, all parcels within the zone shall be marked as such on the zoning map of El Paso. Within the SmartCode Zone, the approved infill regulating plan and this title shall become the exclusive and mandatory zoning regulation, and its provisions, as altered by approved warrants, variances, and adjustments, shall be applied in their entirety property owners within the plan area may submit building scale plans under Chapter 21.50 in accordance with the provisions of this title. Building scale plans requiring no variances shall be approved administratively by the CRC. (Ord. 16945 § 2 (part), 2008)

(Ord. No. 17441, § 12, 4-26-2011; Ord. No. 17542, § 17, 4-26-2011)

21.40.020 Infill community types.

A. Infill regulating plans shall encompass one or more of the following infill community types. The allocation percentages of Table 14a do not apply.

B. Infill TND (traditional neighborhood development).

1. An infill TND shall be assigned to neighborhood areas that are predominantly residential with one or more mixed use corridors or centers. An infill TND shall be mapped as at least one complete standard pedestrian shed, which may be adjusted as a network pedestrian shed, oriented around one or more existing or planned common destinations.

2. The edges of an infill TND should blend into adjacent neighborhoods and/or a downtown without buffers.

C. Infill RCD (regional center development).

1. An infill RCD should be assigned to urban core areas that include significant office and retail uses as well as government and other civic institutions of regional importance. An infill RCD shall be mapped as at least one complete long or linear pedestrian shed, which may be adjusted as a network pedestrian shed, oriented around and important mixed use corridor or center.

2. The edges of an infill RCD should blend into adjacent neighborhoods without buffers.

D. Infill TOD (transit-oriented development) overlay.

1. Any infill TND or infill RCD on an existing or projected rail or bus rapid transit (BRT) network may be re-designated in whole or in part as with a TOD overlay and permitted the higher density represented by the effective parking allowance in Section 21.50.090 B.4.

2. A proposed TOD overlay shall be clearly indicated on an Infill regulating Plan and shall be subject to approval by the City Council concurrently with approval of, or amendment to, a SmartCode Zone.

E. Infill RCD-airport (regional center development).

1. An infill RCD-airport should be assigned to urban core areas that are within one mile of the airport terminal, or along the Montana BRT route. An infill RCD-airport shall be mapped as at least one complete long or linear pedestrian shed, which may be adjusted as a network pedestrian shed, oriented around an important mixed use corridor or center. The RCD-airport may contain one or more standard pedestrian sheds in combination with a long or linear pedestrian shed.

2. The edges of an infill RCD-airport should blend into adjacent neighborhoods without buffers. (Ord. 16945 § 2 (part), 2008)
(Ord. No. 17542, § 18, 4-26-2011; Ord. No. 17787, § 5, 5-15-2012; Ord. No. 17898, § 1, 10-30-2012)

21.40.030 Transect zones.

A. Transect zone standards for infill regulating plans have been calibrated by means of a survey of exemplary existing and intended conditions, as identified in a process of public consultation and were later adopted into this title by city council.

B. After approval into a SmartCode Zone by the city council, landowners in each transect zone may obtain building scale plans that include any of the elements indicated by Chapters 21.40 and 21.50. (Ord. 16945 § 2 (part), 2008)
(Ord. No. 17542, § 19, 4-26-2011)

21.40.040 Civic zones.

A. General.

1. Infill regulating plans should designate civic space zones (CS) and civic building zones (CB). Civic spaces are public sites permanently dedicated to open space. Civic zones are designated on infill community regulating plans; property designated as a civic zone must also be assigned to a transect zone.

2. A civic zone may be permitted if it does not occupy more than twenty percent of a pedestrian shed, otherwise it is subject to the creation of a special district. See Section 21.40.050.

B. Civic space zones (CS).

1. Civic spaces shall be generally designed as described in Table 13, their type determined by their transect zone.

C. Civic building zones (CB).

1. Civic buildings shall be permitted on civic building zones reserved in the infill regulating plan.

2. Civic buildings shall be subject to the requirements of Chapter 21.50. (Ord. 16945 § 2 (part), 2008)
(Ord. No. 17542, § 20, 4-26-2011)

21.40.050 Special districts.

A. Areas that, by their intrinsic size, function, or configuration, cannot conform to the requirements of any transect zone or combination of zones shall be designated as special districts by the planning division in the process of preparing an infill community plan.

B. Special districts that do not have provisions within this title (see Section 21.80.220, Table 16) shall be excluded from the SmartCode Zone and governed by the standards of the existing zoning. (Ord. 16945 § 2 (part), 2008)
(Ord. No. 17441, § 3, 10-26-2010; Ord. No. 17542. § 21, 4-26-2011)

21.40.060 Pre-existing conditions.

A. Existing buildings and appurtenances that do not conform to the provisions of this title may continue in the same use and form until a substantial modification occurs or is requested, at which time the consolidated review committee (CRC) shall determine the provisions of this section that shall apply.

B. Reserved.

C. The modification of existing buildings or the improvement of thoroughfares is permitted by right if such changes result in greater conformance with the specifications of this title.

D. Where buildings exist on adjacent lots, the CRC may require that a proposed building match one or the other of the adjacent setbacks and heights rather than the provisions of this title.

E. Reserved.

F. The restoration or rehabilitation of an existing building shall not require the provision of: (a) parking in addition to that existing, or (b) on-site stormwater retention/detention in addition to that existing. Existing parking requirements that exceed those for this title may be reduced as provided by Tables 10 and 11. (Ord. 16945 § 2 (part), 2008)

(Ord. No. 17542, § 22, 4-26-2011; Ord. No. 17787, § 6, 5-15-2012)

21.40.070 Special requirements.

A. An infill regulating plan may designate any of the following special requirements, which if approved shall then be enforced at the building scale plan stage:

1. A differentiation of the thoroughfares as A-grid and B-grid. Buildings along the A-grid shall be held to the highest standard of this title in support of pedestrian activity. Buildings along the B-grid may allow automobile-oriented standards. The Frontages assigned to the B-grid shall not exceed thirty percent of the total length of frontages within a pedestrian shed. There is no limitation on the B-grid within SD5.

2. Designations for mandatory and/or recommended retail frontage requiring or advising that a building provide a shopfront at sidewalk level along the entire length of its private frontage. The shopfront shall be no less than seventy percent glazed in clear glass and shaded by an awning overlapping the sidewalk as generally illustrated in Table 7 and specified in Chapter 21.50. The first floor shall be confined to retail use through the depth of the second layer. (Table 17d.)

3. Designations for mandatory and/or recommended gallery frontage, requiring or advising that a building provide a permanent cover over the sidewalk, either cantilevered or supported by columns. The gallery frontage designation may be combined with a retail frontage designation.

4. Designations for mandatory and/or recommended arcade frontage, requiring or advising that a building overlap the sidewalk such that the first floor façade is a colonnade. The arcade frontage designation may be combined with a retail frontage designation.

5. A designation for coordinated frontage, requiring that the public frontage (Table 4A) and private frontage (Table 7) be coordinated as a single, coherent landscape and paving design.

6. Designations for mandatory and/or recommended terminated vista locations, requiring or advising that the building be provided with architectural articulation of a type and character that responds visually to the location, as approved by the CRC.

7. A designation for cross block passages, requiring that a minimum eight-foot-wide pedestrian access be reserved between buildings.

8. Designations for mandatory and/or recommended forecourt frontage, requiring or advising that a portion of the façade is close to the frontage line and the central portion is set back for cafes or vehicular drop-offs. The forecourt frontage designation may be combined with a retail frontage designation. (Ord. 16945 § 2 (part), 2008)

(Ord. No. 17542, § 23, 4-26-2011; Ord. No. 17898, § 2, 10-30-2012)

Chapter 21.50

BUILDING SCALE PLANS

Sections:

21.50.010 Instructions.

21.50.020 Reserved.

21.50.030 Special requirements.

21.50.040 Civic zones.

21.50.050 Specific to T1 Natural Zone.

21.50.060 Building disposition.

21.50.070 Building configuration.

21.50.080 Building function.

21.50.090 Parking and density calculations.

21.50.100 Parking location standards.

21.50.110 Landscape standards.

21.50.120 Signage Standards

21.50.120.010 Purposes.

21.50.120.020 Applicability.

21.50.120.030 Findings.

21.50.120.040 Nonconforming signs.

21.50.120.050 Prohibited signs.

21.50.120.060 Exempt signs.

21.50.120.070 General requirements.

21.50.120.080 Alternative sign hardware requirements.

21.50.120.090 Permit required.

21.50.120.100 Appeals.

21.50.120.110 Removal of signs.

21.50.120.120 Temporary sign standards.

21.50.120.130 Sign measurement.

21.50.120.140 Definitions.

21.50.130 Natural drainage standards.

21.50.140 Architectural standards.

21.50.010 Instructions.

A. Lots and buildings that have been zoned to a SmartCode Zone are subject to the requirements of this chapter and to the new community or infill regulating plans that were approved by the city council when the SmartCode Zone was established, or as those plans were subsequently adjusted by the CRC (see Section 21.10.050).

B. Owners and developers may have the design plans required under this chapter prepared on their behalf. Such plans require administrative approval by the CRC.

C. Building and site plans shall show the following, in compliance with the standards described in this chapter:

1. Prior to submittal of a plat for approval, the applicant must receive CRC approval of a preliminary building scale plan showing the following:

a. Building disposition.

b. Building configuration.

c. Building function.

d. Parking location standards.

e. Lot lines.

2. Prior to receiving any building permits, and after receiving plat approval, the property owner must receive CRC approval of a final building scale plan showing the following:

a. Landscape standards.

b. Signage standards.

c. Special requirements.

3. If platting is not required by this title, one building scale plan may be submitted that shows all the information listed above for preliminary and final building scale plans. (Ord. 16945 § 2 (part), 2008)

(Ord. No. 17542, § 24, 4-26-2011)

21.50.020 Reserved.

21.50.030 Special requirements.

A. A new community regulating plan or an infill regulating plan may designate any of the following special requirements to be applied according to the standards of this chapter:

1. A differentiation of the thoroughfares as A-grid and B-grid. Buildings along the A-grid shall be held to the highest standard of this title in support of pedestrian activity. Buildings along the B-grid may allow automobile-oriented standards.

The frontages assigned to the B-grid shall not exceed thirty percent of the total length of frontages within a pedestrian shed. There is no limitation on the B-grid within SD5.

2. Designations for mandatory and/or recommended retail frontage requiring or advising that a building provide a shopfront at sidewalk level along the entire length of its private frontage. The shopfront shall be no less than seventy percent glazed in clear glass and shaded by an awning overlapping the sidewalk as generally illustrated in Table 7 and specified in Chapter 21.50. The first floor shall be confined to retail use through the depth of the second layer (Table 17d). Special districts that require retail frontage do not require retail use.

3. Designations for mandatory and/or recommended gallery frontage, requiring or advising that a building provide a permanent cover over the sidewalk, either cantilevered or supported by columns. The gallery frontage designation may be combined with a retail frontage designation;

4. Designations for mandatory and/or recommended arcade frontage, requiring or advising that a building overlap the sidewalk such that the first floor facade is a colonnade. The arcade frontage designation may be combined with a retail frontage designation;

5. A designation for coordinated frontage, requiring that the public frontage (Table 4A) and private frontage (Table 7) be coordinated as a single, coherent landscape and paving design;

6. Designations for mandatory and/or recommended terminated vista locations, requiring or advising that the building be provided with architectural articulation of a type and character that responds visually to the location, as approved by the CRC;

7. A designation for cross block passages, requiring that a minimum eight-foot wide pedestrian access be reserved between buildings.

8. Designations for mandatory and/or recommended forecourt frontage, requiring or advising that a portion of the facade is close to the frontage line and the central portion is set back for cafes or vehicular drop-offs. The forecourt frontage designation may be combined with a retail frontage designation.

B. If any of these special requirements have been designated on a new community or infill community regulating plan, approval of building scale plans is contingent on compliance with all applicable special requirements.

(Ord. 16945 § 2 (part), 2008; Ord. No. 17378, § 2, 8-24-2010; Ord. No. 17542, § 25, 4-26-2011)

21.50.040 Civic zones.

A. General.

1. Civic zones are designated on new community and infill community regulating plans as civic space (CS) or civic building (CB). Land so designated may be developed and used only in accordance with this title's requirements for civic zones.

2. Parking for civic zones shall be calculated per the standards of Chapter 20.14 and Appendix C of this title. On street parking available along the frontage lines that correspond to each lot shall be counted toward the parking requirement of the building on the lot The required parking may also be provided within one-quarter mile of the site that it serves. In new communities, civic parking lots may remain unpaved if graded, compacted and landscaped.

B. Civic space zones (CS).

1. Civic spaces shall be generally designed as described in Table 13.

C. Civic building zones (CB).

1. Civic buildings shall be subject to the requirements of this chapter.

(Ord. 16945 § 2 (part), 2008; Ord. No. 17542, § 26, 4-26-2011)

21.50.050 Specific to T1 Natural Zone.

A. Buildings in the T1 Natural Zone are permitted only by variance. Permission to build in T1 and the standards for this chapter shall be determined concurrently as variances, in public hearing of the zoning board of adjustment. Once the zoning board of adjustment has made a decision on this request, that decision shall be subject to re-

view by the city council in a public hearing. (Ord. 16945 § 2 (part), 2008)

21.50.060 Building disposition.

A. Specific to zones T3 and T4.

1. One principle building at the frontage, and one outbuilding to the rear of the principle building, may be built on each lot as shown in Table 17c.

B. Specific to zones T3, T4, T4-O, T5, T5-O, T6 and special districts SD3, SD4, SD5, SD6, and SD7.

1. Newly platted lots shall be dimensioned according to Table 14f, Table 16f and Table 15.

2. Building disposition types shall be as shown in Table 9.

3. Buildings shall be disposed in relation to the boundaries of their lots according to Table 14g, Table 16g and Table 15.

4. Reserved.

5. Lot coverage by building shall not exceed that recorded in Table 14f, Table 16f and Table 15.

6. Façades shall be built parallel to a rectilinear principal frontage line or to the tangent of a curved principal frontage line, and along a minimum percentage of the frontage length at the setback, as specified on Table 14g, Table 16g and Table 15.

7. Setback for principal buildings shall be as shown in Table 14g, Table 16g and Table 15. In the case of an infill lot, setbacks shall match one of the existing adjacent setbacks. Setbacks may otherwise be adjusted by warrant provided it does not exceed a ten percent deviation.

8. Rear setbacks for outbuildings shall be a minimum of twelve feet measured from the centerline of the rear alley of rear lane easement. In the absence of rear ally or rear lane, the rear setback shall be as shown in Table 14h, Table 16h and Table 15.9.

9. To accommodate building on slopes over ten percent, relief from front setback requirements is available by warrant provided it does not exceed a twenty percent deviation.

C. Specific to zones T5, T5-O, T6 and special districts SD3 and SD4.

1. The principal entrance shall be on a frontage line.

(Ord. 16945 § 2 (part), 2008; Ord. No. 17378, § 2, 8-24-2010; Ord. No. 17542, § 27, 4-26-2011; Ord. No. 17787, § 7, 5-15-2012; Ord. No. 17962, § 5, 3-5-2013; Ord. No. 19245, § 1, 10-12-2021)

21.50.070 Building configuration.

A. General to zones T2, T3, T4, T4-O, T5, T5O, T6 and special districts SD3, SD4, SD5, SD6, SD7.

1. The private frontage of buildings shall conform to and be allocated in accordance with Table 7, Table 14j and Table 16i.

2. Buildings on comer lots shall have two private frontages as shown in Table 17. Prescriptions for the parking layers pertain only to the Principal Frontage. Prescriptions for the first layer pertain to both frontages.

3. Building heights and Setbacks shall conform to Table 8, Table 14k, and Table 16j.

4. Stories may not exceed fourteen feet in height from finished floor to finished floor, except for a first floor commercial function, which shall be a minimum of eleven feet and may be a maximum of twenty-five feet. A single floor level exceeding fourteen feet, or twenty-five feet at ground level, shall be counted as two stories. Mezzanines extending beyond thirty-three percent of the floor area shall be counted as an additional floor.

5. In a parking structure or garage, each level counts as a single story regardless of its relationship to habitable stories.

6. Height limits do not apply to attics or raised basements, masts, belfries, clock towers, chimney flues, water tanks, or elevator bulkheads.

B. Specific to zones T2, T3, T4, T4-O, T5, T5O.

1. The minimum size of a dwelling within a principal building shall be three hundred square

feet in interior space. Outbuildings may be any size, not to exceed four hundred forty square feet.

C. Specific to zone T3.

1. No portion of the private frontage may encroach the sidewalk.

2. Open porches may encroach the first layer fifty percent of its depth. (Table 17d)

3. Balconies and bay windows may encroach the first layer twenty-five percent of its depth.

D. Specific to zone T4.

1. Balconies, open porches and bay windows may encroach the first layer fifty percent of its depth. (Table 17d).

2. Awnings and galleries may encroach the sidewalk to within two feet of the curb but must clear the sidewalk vertically by at least eight feet.

E. Specific to zone T4-O.

1. Building heights shall be a minimum of twenty feet at the frontage line.

F. Specific to zones T4-O, T5, T5O, T6 and special districts SD3, SD4, SD5, SD6.

1. Awnings, arcades, and galleries may encroach the sidewalk to within two feet of the curb but must clear the sidewalk vertically by at least eight feet.

2. Stoops, lightwells, balconies, bay windows, and terraces may encroach the first layer one hundred percent of its depth. Balconies and bay windows may encroach the sidewalk twenty-five percent of its depth. (Table 17d).

3. Reserved.

4. In the absence of a building facade along any part of a frontage line, a streetscreen shall be built coplanar with the facade.

5. Streetscreens should be between 3.5 and eight feet in height. The streetscreen may be replaced by a hedge or fence, provided they are not transparent. Streetscreens shall have openings no larger than necessary to allow automobile and pedestrian access.

G. Specific to special districts SD3, SD4, SD5.

1. Building heights shall be limited to the height requirements established in Federal Aviation Regulations Part 77 or successor regulations for the airport. Exclusions to this rule may be permitted by the department of aviation.

2. Building heights may further be limited by the EPIA Regulating Plan.

H. Specific to special district SD5.

1. Building heights shall be limited to seventy feet (Ord. 16945 § 2 (part), 2008)

(Ord. No. 17378, § 2, 8-24-2010; Ord. No. 17542, § 28, 4-26-2011; Ord. No. 17787, § 8, 5-15-2012; Ord. No.17962, § 6, 3-5-2013)

21.50.080 Building function.

A. General to zones T2, T3, T4, T4-O, T5, T5O, T6 and special districts SD3, SD4, SD5, SD6, SD7.

1. Buildings in each transect zone and special district shall conform to the functions on Table 10, Table 12, Table 141 and Table 16k.

B. Specific to zones T2, T3.

1. Accessory functions of restricted lodging or restricted office shall be permitted within an outbuilding. See Table 10.

C. Specific to zones T4, T4-O, T5, T5O.

1. Accessory functions of limited lodging or limited office shall be permitted within an outbuilding. See Table 10.

D. Specific to zones T5, T5O, T6 and special districts SD3, SD4, SD6.

1. First story commercial functions shall be permitted.

2. Manufacturing functions within the first story may be permitted by variance. (Ord. 16945 § 2 (part), 2008)

(Ord. No. 17378, § 2, 8-24-2010; Ord. No. 17542, § 29, 4-26-2011; Ord. No. 17787, § 9, 5-15-2012; Ord. No. 17962, § 7, 3-5-2013)

21.50.090 Parking and density calculations.

A. Specific to zones T2, T3.

1. Buildable density on a lot shall be determined by the actual parking provided within the lot as applied to the functions permitted in Table 10.

B. Specific to zones T4, T4-O, T5, T5O, T6 and special district SD6.

1. Buildable density on a lot shall be determined by the sum of the actual parking calculated as that provided (1) within the lot, (2) along the parking lane corresponding to the lot frontage, and (3) by purchase or lease from a civic parking reserve within the pedestrian shed, if available.

2. The actual parking may be adjusted upward according to the shared parking factor of Table 11 to determine the effective parking. The shared parking factor is available for any two functions within any pair of adjacent blocks.

3. Based on the effective parking available, the density of the projected function may be determined according to Table 10.

4. The total density within each transect zone or special district shall not exceed that specified by an approved new community regulating plan based on Chapter 21.30 or infill regulating plan based on Chapter 21.40.

5. Accessory units do not count toward density calculations.

6. Liner buildings less than thirty feet deep and no more than two stories shall be exempt from parking requirements. (Ord. 16945 § 2 (part), 2008) (Ord. No. 17378, § 2, 8-24-2010; Ord. No. 17542, § 30, 4-26-2011; Ord. No. 17787, § 10, 5-15-2012)

21.50.100 Parking location standards.

A. General to zones T2, T3, T4, T4-O, T5, T5O, T6 and special districts SD3, SD4, SD5, SD6, SD7.

1. Parking shall be accessed by rear alleys or rear lanes, when such are available or are indicated on the regulating plan.

2. Open parking areas shall be masked from the frontage by a building or streetscreen.

3. For buildings on B-grids, open parking areas may be allowed unmasked on the frontage.

B. Specific to zones T2, T3.

1. Open parking areas shall be located at the second and third lot layers, except that driveways, drop-offs and unpaved parking areas may be located at the first lot layer. (Table 17d)

2. Garages shall be located at the third lot layer except that side- or rear-entry types may be allowed in the first or second lot layer.

C. Specific to zones T3, T4.

1. Driveways at frontages shall be no wider than ten feet in the first layer. (Table 3B f.)

D. Specific to zone T4.

1. All parking areas and garages shall be located at the third layer.

E. Specific to zones T4-O, T5, T5O, T6 and special districts SD3, SD4, SD6, SD7.

1. All parking lots, garages, and parking structures shall be located at the second or third lot layer. (Table 17d)

2. Vehicular entrances to parking lots, garages, and parking structures shall be no wider than twenty-four feet at the frontage.

3. Pedestrian exits from all parking lots, garages, and parking structures shall be directly to a frontage line (i.e., not directly into a building) except underground garage levels which may be exited by pedestrians directly into a building.

4. Parking structures on A-grids shall have liner buildings lining the first and second stories.

5. A minimum of one bicycle rack place shall be provided within the public or private frontage for every ten vehicular parking spaces (Ord. 16945 § 2 (part), 2008)
(Ord. No. 17378, § 2, 8-24-2010; Ord. No. 17542, § 31, 4-26-2011; Ord. No. 17787, § 11, 5-15-2012; Ord. No. 17962, § 8, 3-5-2013)

21.50.110 Landscape standards.

A. General to zones T2, T3, T4, T4-0, T5, T50, T6 and special districts SD3, SD4, SD5, SD6, SD7.

1. Impermeable surface shall be confined to the ratio of lot coverage specified in Tables 14f and 16f.

B. Specific to zones T2, T3, T4.

1. The first layer may not be paved, with the exception of driveways as specified in Section 21.50.100 B. and Section 21.50.100 C. (Table 17d)

C. Specific to zone T3.

1. A minimum of one tree shall be planted within the first layer for each forty feet of frontage line or portion thereof. (Table 17d)

2. Trees may be of single or multiple species as shown on Table 6.

3. Trees shall be naturalistically clustered.

4. Lawns may be permitted provided they are composed of native or non-native adapted species.

D. Specific to zone T4.

1. A minimum of one tree shall be planted within the first layer or each forty feet of frontage line or portion thereof. (Table 17d)

2. The species shall be a single species to match the species of street trees on the public frontage, or as shown on Table 6.

3. Lawns may be permitted provided they are composed of native or non-native adapted species.

E. Specific to zones T4-O, T5, T5O, T6 and special district SD6.

1. Trees shall not be required in the first layer.

2. The first layer may be paved to match the pavement of the public frontage.

F. General to special districts SD3, SD4, SD5, SD6, SD7.

1. Site and landscape design standards.

a. The spacing and placement of plants shall be adequate and appropriate for species size at maturity and/or for the grouping of a single plant species.

b. All proposed street trees shall be centered a minimum of five feet clear of underground utilities, utility meters, and service lines.

c. Proposed trees shall be a minimum height of ten feet.

d. Proposed street tree height and type shall be appropriate for the frontage conditions.

e. Trees with existing or potential canopy covering sidewalks, driveways, paths, plazas, alleys, lanes, parking space or street pavements shall be of a type that, at maturity or with minor pruning at installation, provide a clear height of eight feet for sidewalks and paths, twelve feet for driveways, parking spaces and streets, and fifteen feet for loading areas, exclusive of tree grates or planting areas with gravel mulch.

f. Vegetation with spines, thorns or needles that may present hazards to pedestrians, bicyclists or vehicles are prohibited in the first layer.

g. Bare and exposed ground on the site and/or in landscaped areas shall be covered with live plant materials and/or mulch, with the following exceptions:

i. Naturally occurring arroyos, rock outcroppings or similar landscape features typically lacking in vegetation.

ii. Hiking trails and/or traces in T1.

iii. Clay or sand surfaces associated with recreation fields and facilities.

h. All required landscape areas shall be irrigated by an automatic underground irrigation system, drip irrigation or soaker hose.

i. Where possible and practical, bubbler and drip irrigation systems shall be utilized.

j. Stormwater detention and retention ponds shall be integrated landscape features, rather than singlepurpose flood control and stormwater management ponds.

k. Stormwater detention and retention ponds shall be planted with appropriate trees, shrubs and grasses. Hydrophilic plants are required in basin areas prone to submersion.

l. Constructed water features such as fountains, streams and ponds that operate with water recirculation systems shall be designed to prevent seepage and leaks.

2. Landscape construction standards.

a. Open spaces and civic space shall be protected with a temporary construction fence during all site work and construction activities unless alterations to them are otherwise specified by landscape grading plans.

b. The soil structure of wide planting strips shall be protected from compaction with a temporary construction fence. Standards of access, excavation, movement, storage and backfilling of

soils in relation to the construction and maintenance of deep utilities and manholes shall be specified.

c. The topsoil within the construction area's limits of disturbance shall be removed, stored and amended as recommended by a landscape soils test.

d. Wind erosion shall be mitigated and controlled though dust abatement and similar practices during the period of site work and construction.

e. Landscape soils that have been compacted during construction activities shall be loosened and aerated to a depth of at least six inches before planting.

f. Plants shall have normal, well-developed branches and vigorous root systems.

g. Temporary spray irrigation systems may be used to establish seeded areas for grass and groundcover.

3. Landscape maintenance.

a. All grass and vegetation shall be lightly fertilized to avoid fertilizer pollution to groundwater, streams and ponds.

b. No disturbed ground shall be left exposed. Turfgrass and other approved and appropriate groundcovers or mulch shall cover all non-paved and non-built developed areas.

c. It shall be the responsibility of the property owner(s) or his assigned agent(s) to:

i. Maintain and keep all screening and fencing in good condition at all times; and

ii. Maintain landscaping by keeping lawns properly mowed and edged, plants properly pruned and disease-free, and planting beds mulched, groomed and weeded, except in T1, and areas of naturally occurring vegetation and undergrowth; and

iii. Replace any required planting(s) which are significantly damaged, altogether removed, infested, disease ridden, or dead within one year or the next planting season, whichever occurs first, except in T1, and areas of naturally occurring vegetation and undergrowth.

G. Specific to special districts SD3 airport T5.1 and SD4 airport T5.2.

1. Trees shall not be required in the first layer.

2. The first layer may be paved to match the pavement of the public frontage.

3. Landscape islands in interior parking lots shall only occur at the end of drive aisles.

4. Islands should be the minimum size for healthy growth for the specific species of tree.

5. Porous paving materials are encouraged in order to increase stormwater infiltration on site.

H. Specific to special district SD5 airport science and technology.

1. Buffers and screening elements shall be used to screen parking areas from public view, to screen service yards and other places that are unsightly along B streets, and to buffer between the special district and the adjacent airport special districts.

2. A street landscape border may include the sidewalk and shall be a minimum of ten feet in width, running the full length of the street property line bounding the site except for points of ingress and egress. The measurement starts at the right-of-way.

3. A minimum of one tree shall be planted within the first layer for each forty feet of frontage line or portion thereof.

4. Fifty percent or more of the street landscape border area must have shrubs and vegetative cover.

5. An interior landscape border is located along common property lines and is required between SD5 airport science and technology and an airport special district.

6. Plants shall be five-gallon minimum and of a type that will maintain a screen at least thirty-six inches high. The plant chosen to provide screening must have a mature width that will provide an opaque screen.

7. Fifty percent of the interior landscape border shall be equally covered with vegetation.

I. Specific to Northwest Park, Airport and MCA SD Parks. Parks shall be managed with

appropriate low care and drought tolerant grasses cut high or uncut. Parks may be left with native vegetation only.

J. Specific to Northwest Park, Airport and MCA SD Greens. Greens shall be planted or managed with appropriate low care and drought tolerant turf grasses cut high.

K. Specific to Northwest Park, Airport and MCA SD Squares. Squares shall be carefully graded, leveled, and planted with sod. (Ord. 16945 § 2 (part), 2008)
(Ord. No. 17378, § 2, 8-24-2010; Ord. No. 17542, § 32, 4-26-2011; Ord. No. 17787, § 12, 5-15-2012; Ord. No. 17962, § 9, 3-5-2013)

21.50.120 Signage standards*

21.50.120.010 Purposes.

This chapter provides a comprehensive system for the regulation of signs, to serve the following purposes:

A. To allow adequate opportunity for the exercise of free speech by the display of a message or an image on a sign, while balancing that opportunity against the community and public interests affected by signs;

B. To protect the health, safety, and general welfare of the city and its residents and to execute the policies of the city's comprehensive plan;

C. To enhance the aesthetic value of the city's landscape by reducing visual clutter that is potentially harmful to property values and economic development;

D. To protect adjacent and nearby properties from the impact of excessive or inappropriate signage;

E. To protect the safety and efficiency of the city's transportation network by reducing confusion and distractions to pedestrians and motorists while enhancing motorists' ability to see pedestrians, obstacles, other vehicles, and traffic signs; and

F. To preserve, protect and enhance areas of designated historical, architectural and scenic value.
(Ord. No. 18505, § 1, 5-17-2016)

21.50.120.020 Applicability.

A. The regulations of Title 20 Zoning shall be applicable for issues not addressed by this chapter.

B. This chapter shall apply to all areas of the city classified as SmartCode Zone.
(Ord. No. 18505, § 1, 5-17-2016)

21.50.120.030 Findings.

In adopting this chapter, El Paso City Council makes the following findings:

A. That the excessive number, size and height of signs, both off-premises and on-premises, is unduly distracting and confusing to motorists and pedestrians, creates traffic hazards, and reduces the effectiveness of signs needed to direct the public;

B. That the appearance of the city, particularly that of its residential and light commercial districts, is marred by excessive signs;

C. That the aforementioned effects detract from the pleasure, safety and economic well-being of the community, and that the number of distracting signs ought to be reduced in order to lessen the detrimental effects; and

D. That the use of signs in the exercise of First Amendment freedoms must be balanced against the community, neighborhood, and social impacts of such signs.

E. That the regulations contained in this chapter are the minimum amount of regulation necessary to achieve its purposes.
(Ord. No. 18505, § 1, 5-17-2016)

21.50.120.040 Nonconforming signs.

A. The provisions of Title 20.22.090 shall be applicable.
(Ord. No. 18505, § 1, 5-17-2016)

***Editor's note**—Ord. No. 18505, § 1, adopted May 17, 2016, amended Section 21.50.120 in its entirety to read as herein set out. Former Section 21.50.120 pertained to similar subject matter, and derived from Ord. 16945 § 2 (part), 2008; Ord. No. 17378, § 2, 8-24-2010; Ord. No. 17542, § 33, 4-26-2011; Ord. No. 17787, § 13, 5-15-2012; Ord. No. 17962, § 10, 3-5-2013.

21.50.120.050 Prohibited signs.

A. Except as herein modified, the provisions of Title 20.18.140 (Prohibited signs), shall apply.

B. In addition, the following signs are prohibited:

1. Sign walkers.

2. Temporary signs, except as specifically allowed in Section 21.50.120.120

3. Signage with internal lighting except as otherwise provided for herein.

4. Signage with animated illumination, except as provided for herein.

5. Off-premises signs, except as provided herein.

6. Signs that emit audible sound, odor, or matter.

7. Inflatable advertising devices.

8. Temporary active motion inflatables.

9. Temporary inflatable signs.

(Ord. No. 18505, § 1, 5-17-2016)

21.50.120.060 Exempt signs.

A. Message substitution. A noncommercial message which is within the protection of the First Amendment to the U.S. Constitution may be substituted, in whole or in part, for any message on any sign authorized by this chapter. Message substitution is a continuing right which may be exercised any number of times. No permit is required for such message substitution, unless there is a change in the physical structure of the sign displaying the message. This provision does not authorize the substitution of an offsite commercial message in place of an onsite commercial message.

B. Noncommercial messages. In addition to the noncommercial messages which may be displayed by message substitution, any noncommercial message within the protection of the First Amendment to the U.S. Constitution may be displayed on any parcel and at any time, subject to the following:

1. No greater than 36 square feet in area.

2. No more than eight feet in height.

3. No illumination or moving elements.

4. Not prohibited by Section 21.50.120.050.

5. Permit required only when the sign qualifies as a "structure" under the building code.

C. Signs that do not exceed four square feet in surface area are exempt from the provisions of this title, provided that this size limitation shall not apply to signs providing directions, warnings, or information when established and maintained by a public agency.

(Ord. No. 18505, § 1, 5-17-2016)

21.50.120.070 General requirements.

A. The following standards are applicable to all signs, regardless of hardware type or orientation, unless specifically exempted.

1. All signs shall be constructed of nonreflective materials.

2. Building-mounted signs shall be compatible in size, shape, character, and quality of design with the exterior architecture of the premises and other structures in the immediate area.

3. Ground level signs: Any sign with any portion of sign hardware encroaching into the lowest 14 feet of a building face shall be designated a Ground Level sign, and subject to the requirements thereof. Total area of signs associated with uses occupying the ground level of a building shall not exceed 50 percent of the ground level building façade associated with the signage; provided that no single sign shall exceed an area of 48 square feet. This restriction shall not apply to auxiliary signs, incidental signs, alternative hardware signs, or mural, or sidewalk oriented signs.

4. Upper level signs: Total area of signs associated with uses occupying upper levels of a building shall not exceed ten percent of the associated façade. These restrictions shall not apply to mural or roof oriented signs.

5. Signage shall be permitted on all building faces.

6. Illuminated signs shall conform to the regulations of Section 18.18 of this Code.

7. Signs shall be placed with consideration for existing and future growth of trees and other landscaping.

8. The design, illumination, and location of a sign shall not impair the visibility or the design quality of existing, conforming signs, adjacent buildings, or adjacent uses.

9. No sign shall encroach on the vision clearance triangle.

10. No sign shall block any required access way. No sign or sign structure shall be erected in such a manner that any portion of its surface or supports will interfere in any way with the free use of any fire escape, exit, or standpipe.

11. No sign shall obstruct any window in a manner that violates the applicable requirements of the International Building Code.

12. Directional signs shall not count toward the total allowable area of signs associated with a use on the same property. Directional signs shall comply with all other applicable standards in this section, and all applicable sign orientation type standards. No more than one directional sign shall be permitted per lot.
(Ord. No. 18505, § 1, 5-17-2016)

21.50.120.080 Alternative sign hardware requirements.

A. Signs that do not conform to any of the sign hardware types defined in this section, but nevertheless meet the design standards and intent of the SmartCode, may utilize the alternative sign hardware type.

B. Other requirements.

1. Signs permitted under this section shall conform to the prohibitions defined in Section 21.50.120.050.

2. Except as herein exempted, signs permitted under this section shall conform with the general sign requirements defined in Section 21.50.120.070.

3. No more than two signs utilizing the alternative hardware type shall be permitted on any parcel.
(Ord. No. 18505, § 1, 5-17-2016)

21.50.120.090 Permit required.

A. A sign permit is required for any sign proposed for installation at the premises of a business, except the following signs are exempt from this requirement:

1. Exempt signs as listed in Section 21.50.120.060, exempt signs.

2. Auxiliary signs.

3. Incidental signs.

B. It shall be unlawful for any person to construct, install, place, relocate, maintain, attach, or modify the dimensions or illumination characteristics of any sign without a valid sign permit. All signs must be constructed, installed, placed, relocated, maintained, modified, or attached in compliance with the terms and conditions of the applicable sign permit.

C. Sign contractor. No permanent sign requiring a sign permit shall be installed, constructed, relocated, modified or expanded, except by a licensed sign contractor.

D. Sign permit issuance and inspection. No sign permit shall be issued unless a complete application and sign permit fee has been submitted to the city, and the proposed sign or signs comply with this title and all other applicable city codes, ordinances, and regulations.

E. As a condition of the issuance of the sign permit, the city manager or designee shall have the authority to inspect any sign for compliance with its sign permit, this article, and other applicable city codes, ordinances, and regulations.

F. Expiration. A sign permit shall expire if:

1. The sign has not been completely constructed, installed, placed, changed, relocated, or attached within 180 days of the date of issuance of the sign permit; or,

2. The sign is removed or abandoned.

G. Denial or revocation. The city manager or designee may deny or revoke a sign permit for any of the following reasons:

1. Failure to submit a complete application and/or the sign permit fee;

2. Fraud, misrepresentation, or a false statement in the sign application;

3. Failure to permit the city access to the sign to inspect for compliance with this title, the sign permit or applicable city codes, ordinances, and regulations; or,

4. Failure of the sign to comply with this article, the sign permit, or applicable city codes, ordinances, and regulations.

H. Sign permit fee refund. The sign permit fee shall not be refunded if a sign permit expires, is denied or revoked.
(Ord. No. 18505, § 1, 5-17-2016)

21.50.120.100 Appeals.

A. All sign permit applications shall be initially reviewed by the director. When the director issues a decision on a sign permit application, or when the time for doing so has expired without a written decision, the applicant or any concerned person may appeal to the zoning board of adjustment under the provisions of Section 2.16.040 of this Code. The appeal shall be processed under the same procedures specified for appeals to the zoning board of adjustment. The zoning board of adjustment shall hold a duly noticed public hearing thereon, and issue a written decision thereon, within 30 business days. Failure of the board to render a decision within the time specified hereunder shall deem the appeal denied. The written decision shall make findings and state reasons, supported by evidence in the record, for the decision. In determining the appeal, the zoning board of adjustment shall not consider message content or graphical design of the sign, unless the message or image has no protection under the First Amendment to the U.S. Constitution.
(Ord. No. 18505, § 1, 5-17-2016)

21.50.120.110 Removal of signs.

A. After inspection by the building official, the following signs may be subject to removal by the city, in accordance with the procedure enumerated herein; however, the city may at any time under its police powers immediately remove signs which constitute an immediate danger to persons or property without going through the procedures identified herein:

1. Signs or their supporting structures which appear to the building official to have become abandoned, neglected or made unattractive by missing letters, panels, lights, faded or peeling paint or graffiti;

2. Any sign which constitutes a hazard to safety, health or public welfare by reason of inadequate maintenance or dilapidation;

3. Any sign erected without permit that cannot be registered under the provisions in this chapter.

B. Procedure. Except as provided herein, prior to the removal of a sign by the city, the building official shall follow the following procedure:

1. The building official shall inform the permit holder, if a permit has been issued; if no permit has been issued, the building official shall send a written notice, via certified mail, to the owner, if the owner is known, by mailing a written notice to the last known address of the owner, or lessee of the sign if that person is identified on the sign or is otherwise known to the building official, to remove such sign and structure or to cure the defect resulting from its neglect within a period of ten days after receipt of notification of violation of this chapter.

2. If the permit holder, owner, or lessee is unknown or cannot be reached, the building official shall publish a legal notice identifying the sign, its location and the corrective action required. The legal notice shall be given by any contemporary means of information sharing, including, but not limited to, publication in a newspaper of general circulation in the city and placement on the city's official website.

3. In no response is received by the building official within ten working days from the date of receipt of notification, or five working days after the date of publication, the building official shall refer the case to the building and standards commission and the case shall be processed under the procedures of Chapter 2.38 of this Code.

C. An on-premises sign shall be removed in compliance with the Local Government Code Title 7 Subtitle A. Sec. 216.003.
(Ord. No. 18505, § 1, 5-17-2016)

21.50.120.120 Temporary sign standards.

A. A temporary sign shall utilize the banner, stake, or standing sign hardware types exclusively.

B. A maximum of two temporary signs may be permitted on a property simultaneously.

C. A sign permit is not required.

D. Temporary signs may not be illuminated.

E. Off-premises signs are not permitted.

F. Reserved.

G. Temporary signs must comply with the provisions of this chapter.
(Ord. No. 18505, § 1, 5-17-2016)

21.50.120.130 Sign measurement.

A. Computation of sign area. Formulas for calculating sign area in the shape of a rectangle, square, triangle, ellipse, circle or similar common geometric shapes shall use commonly accepted mathematical methods. Signs of other shapes shall be measured using the standards herein.

B. Measure of the area of a sign.

1. Banner, cabinet, plaque, programmable, projected, stake and standing sign hardware types.

a. The area of a sign shall be determined on the basis of the outer dimensions of the frame or cabinet surrounding the sign face(s).

b. The area and dimensions of the sign shall encompass a regular geometric shape (rectangle, circle, trapezoid, triangle, etc.), or a combination of regular geometric shapes, which form, or approximate, the perimeter of all elements in the display, and any applied background that is not part of the architecture of the building or structure.

c. When separate elements are organized to form a single message, but are separated by open space, the sign area and dimensions shall be calculated by determining the geometric form, or combination of forms, which encompass all of the display areas, including the space between different elements.

d. For signs with mixed case lettering, a rectangle shall be drawn around either the upper-case or lower-case letters, but not both.

e. For signs utilizing the monument orientation type, the area of a sign shall be calculated to exclude the base of the structure on which the sign is mounted or within which the sign is integrated.

2. Painted and printed sign hardware types.

a. The sign area shall be determined by the regular geometric shape (rectangle, circle, trapezoid, triangle, etc.), or a combination of regular geometric shapes that encompass the perimeter of the sign display or message and all portions of a background surface that differentiate the message display area from the overall monument structure.

3. Three-dimensional signs.

a. The sign face area shall be determined on the basis of the maximum surface area visible from any one perspective.

4. Double-faced signs.

a. When two identical sign faces are placed back-to-back so that both faces cannot be viewed from any single perspective at the same time, and are part of the same sign structure, the sign area shall be computed by measurement of one of the two faces.

b. When a sign has more than two display surfaces, the area of the sign shall be the area of the largest of the display surfaces that are visible from any single perspective.

c. When a double-faced sign has non-parallel faces, such that the angle between the faces exceeds 24 degrees, the sign area shall be calculated as the total of both sign faces.
(Ord. No. 18505, § 1, 5-17-2016)

21.50.120.140 Definitions.

This section provides definitions for terms in this chapter exclusively. If a term is not defined in this chapter, the definitions and terms in Title 20 will govern.

"Alternative sign" means a sign that does not conform to any of the sign hardware types defined in this section, but nevertheless meets the design standards and intent of the SmartCode, as defined in Section 21.50.120.080.

"Auxiliary sign" means a sign with no commercial advertising, except for the name or logo of the business or establishment, that pertains to the safe and efficient movement of pedestrians and vehicular traffic into or out of a building or premises and that has a directional purpose secondary to the use of the lot on which it is located, such as "no parking," "entrance," "loading only," "telephone," "emergency entrance," and other similar directives.

"Awning" means a roof-like sidewalk cover that is permanently mounted on a building face. An awning provides pedestrians with shade and protection from inclement weather. An awning may be of rigid or non-rigid construction, and may be retractable or non-retractable.

"Awning (orientation type)" means an orientation type in which sign hardware is placed atop or upon an awning, canopy, or sidewalk arcade above a storefront. Signage can be printed directly onto a fabric awning, or, if the awning is of a rigid construction, a sign may be mounted upon it.

"Banner (hardware type)" means a sign hardware type in which sign copy is printed onto a flexible material and fastened to a building or pole.

"Blade (orientation type)" means an orientation type in which sign hardware is mounted perpendicular to, and is fully supported by, a building face.

"Cabinet (hardware type)" means a sign hardware type composed of a molded box with all elements of sign copy permanently molded into the physical structure of the sign.

"Directional sign" means a sign placed on private property that guides the traveling public to a use or assortment of uses located on a property or properties, such as a sign displaying the name of a shopping center, apartment complex, or residential development.

"External illumination" means the illumination of a surface of a sign from an external source of light intentionally directed upon the sign. Also known as "indirectly illuminated sign."

"Ground level sign" means any sign mounted on the ground or on any portion of the first floor of a building.

"Halo lighting" means a sign illumination method utilizing diffuse light from sources placed behind opaque sign copy. The source of light is not visible from the public right-of-way.

"Hanging (orientation type)" means a sign orientation type in which sign hardware is attached to and located below any permanent eave, roof, awning, or bracket.

"Incidental sign" means a sign, emblem, or decal the content of which is designed to inform the public of goods, facilities, or services available on the premises, and may include, but shall not be limited to, signs with the following types of content:

1. Hours of business operation.
2. "Open" or "Closed" signs.
3. Logos of credit cards accepted by a business.
4. Property ownership or management information.

"Individual exposed bulb" means a sign illumination method utilizing individual light bulbs to highlight certain aspects of sign copy. The source of illumination is visible from the public right-of-way.

"Inflatable advertising device" means a device which is inflated with air or another gas, or which is activated by wind, air, or propelled gas, and used for outdoor advertising purposes.

"Marquee" means a cantilevered roof-like structure that overhangs the sidewalk in front of a building entrance and has a face parallel to the building face.

"Marquee (orientation type)" means an orientation type in which sign hardware is mounted upon a marquee.

"Monument (orientation type)" means an orientation type in which sign hardware sits on a

dedicated wall or pedestal in front of a building. A sign utilizing this orientation type may have multiple faces with sign copy.

"Mural (orientation type)" means an orientation type in which sign copy is painted directly upon a building face, typically along a side street or alley. This definition does not apply to a mural that is installed for artistic or aesthetic purposes, unless said mural contains elements that advertise an existing business on the adjoining parcel.

"Neon tube" means a sign illumination method utilizing sculpted neon tubes to highlight certain aspects of sign copy. The source of light is visible from the public right-of-way.

"Plaque (hardware type)" means a sign hardware type that features copy that is carved, molded, painted or affixed to a framing surface. A plaque appears from the public right-of-way as one contiguous piece of sign hardware.

"Programmable (hardware type)" means a sign hardware type that features an area for changeable copy. Programmable signs include programmable digital displays, video boards, track letter signs and bulletin boards.

"Projecting (hardware type)" means a sign hardware type with copy that projects in a three-dimensional manner. Channel letters are considered a projecting hardware type.

"Roof (orientation type)" means an orientation type in which a sign is erected upon, over, or above the roof of a building.

"Sandwich board (hardware type)" means a sign hardware type consisting of a freestanding A-frame design that may be placed on a sidewalk to attract pedestrians to a business. Sandwich board sign hardware is portable and freestanding.

"Sidewalk (orientation type)" means an orientation type in which sign hardware that is freestanding and portable is placed on a sidewalk to attract pedestrians to a business.

"Sign" means any outdoor display surface, structure, banner, pennant, inflatable and/or airborne device, whether mounted on land, air, or water, which is visible from any portion of the public right-of-way to vehicular or pedestrian traffic, a principal purpose of which is to attract attention to a communicative visual or graphic image. The term "sign" is inclusive of both on- and off-premises signs, including billboards, and any moving part, lighting sound equipment, framework, background material, structural support, or other part thereof. A display, device or thing need not contain lettering to be a sign. Notwithstanding the generality of the foregoing, the following are not within this definition:

1. Overhead signs or banners towed behind aircraft.

2. Architectural features. Decorative or architectural features of buildings (not including lettering, trademarks or moving parts), which do not perform a communicative function.

3. Fireworks.

4. Foundation stones and cornerstones which are permanent in nature and incapable or not intended for modification once installed.

5. Grave markers, grave stones, headstones, mausoleums, shrines, and other markers of the deceased.

6. Holiday and cultural observance decorations on private residential property which are on display for not more than 45 calendar days per year (cumulative, per parcel or use or dwelling unit).

7. Inflatable games and gymnasiums. Inflatable, temporary, moveable, gymnasium devices commonly used for children's birthday parties, and similar devices. Also called "bounce houses."

8. Manufacturers' marks. Marks on tangible products, which identify the maker, seller, provider or product, and which customarily remain attached to the product even after sale.

9. Mass transit graphics. Graphic images mounted on duly licensed and authorized mass transit vehicles that legally pass through the city.

10. Merchandise on public display and presently available for purchase on-site.

11. News racks and newsstands.

12. Personal appearance. Items or devices of personal apparel, decoration or appearance, including tattoos, makeup, wigs, costumes, masks,

etc. (but not including commercial mascots or hand-held signs or appliances worn for the principal purpose of holding a sign).

13. Search lights and klieg lights when used as part of a search and rescue or other emergency service operations; this exclusion does not apply to search lights or klieg lights used as attention attracting devices for commercial or special events.

14. Shopping carts, golf carts, horse drawn carriages, and similar devices; any motorized or self-propelled vehicle which may be legally operated upon a public road is not within this exclusion.

15. Symbols of non-commercial organizations or concepts including, but not limited to, religious or political symbols, when such are permanently integrated into the structure of a permanent building which is otherwise legal; by way of example and not limitation, such symbols include stained glass windows on churches, carved or bas relief doors or walls, bells, religious statuary, et cetera.

16. Vehicle and vessel insignia on street legal vehicles and properly licensed watercraft or aircraft: license places, license plate frames, registration insignia, non-commercial messages, messages relating to the establishment of which the vehicle or vessel is an instrument or tool (not including general advertising) and messages relating to the proposed sale, lease or exchange of the vehicle or vessel.

17. Vending machines, product dispensing devices and automated product intake devices which do not display offsite commercial messages or general advertising messages; by way of example and not limitation, "automated product intake devices" means machines which accept recycle materials, or "book return" slots at libraries, or "leave your clothes here" boxes at laundry places.

18. Window displays. The display of merchandise in a store window and offered for sale.

19. Incidental signs.

"Sign hardware type" means the classification of a sign based on the physical construction or method of manufacture of the sign. All signs permitted by this code shall conform to one of the sign hardware types described in Section 21.80.020 Table 2A.

"Sign illumination type" means the classification of a sign based on how it is lit. All signs permitted by this code shall conform to one of the sign illumination types described in Section 21.80.020 Table 2C, or shall not be illuminated.

"Sign orientation type" means the classification of a sign based on its location on a parcel. All signs permitted by this code shall conform to one of the sign orientation types described in Section 21.80.020 Table 2D.

"Sign walker" means an individual employed or otherwise induced to carry a sign promoting a particular business.

"Suspended (orientation type)" means an orientation type in which sign hardware is fastened to buildings and/or permanent poles on either end, and suspended across a span.

"Stake (hardware type)" means a sign hardware type that is planted in a front yard. Signs utilizing the stake hardware type are portable, freestanding, and impermanent by design.

"Storefront" means the width of a building frontage that contains a single business establishment. A business establishment may have more than one storefront; for example, a corner store with an entrance on both building faces.

"Standing (hardware type)" means a sign hardware type that may be placed on a sidewalk to attract passers-by to a business. Standing sign hardware is freestanding and portable.

"Temporary active motion inflatable" means a temporary type of inflatable sign utilizing wind baffles and fabric combined with a vortex of air created by a mechanical air system to allow the inflatable to dance and move. Such devices are also known as "aircrows," "wind dancers" and "air dancers."

"Temporary inflatable sign" means an inflatable advertising device greater than two cubic feet in volume, used for advertising purposes.

"Temporary sign" means a sign which, by virtue of its construction from lightweight or flimsy

materials, and construction or installation by hand or with ordinary hand tools, is not suitable for long term display.

"Upper level sign" means any sign mounted on the second floor of a building or above.

"Vision clearance triangle" means an area formed by two intersecting property lines and a third line joining the property lines at points twenty feet from their intersection.

"Wall (orientation type)" means an orientation type in which sign hardware is permanently affixed upon a building face, masonry wall, fence or gate, or individual cut letters are applied directly to a building face.

"Window (orientation type)" means an orientation type in which sign hardware is mounted, or otherwise placed immediately behind a windowpane, or sign copy is painted, or permanently affixed, to a windowpane, and is visible from the public right-of-way.

"Yard (orientation type)" means an orientation type in which freestanding sign hardware is mounted to one or more poles or posts anchored to the ground, and is located in the front of a building.
(Ord. No. 18505, § 1, 5-17-2016)

21.50.130 Natural drainage standards.

A. General to zones T3, T4, T4-O, T5, T5O, T6, SD6, SD7.

1. Buildings should be equipped with roofs of shallow four-inch soils and drought-tolerant plants. Buildings approved for intensive green roofs may hold soils deeper than four inches and larger plants and trees.

2. Balconies should be equipped with planter boxes designed to capture runoff from the balcony.

3. Green walls, if provided, shall be restricted to non-invasive species.

4. Cisterns may be used to capture and recirculate stormwater from buildings.

B. Specific to zone T3.

1. The landscape installed shall consist primarily of native species requiring minimal irrigation, fertilization and maintenance.

C. Specific to zones T3, T4, T4-O.

1. Native plant perennial landscapes should replace turf grass wherever possible and be highly diverse. These should be placed lower than walkways, not mounded up.

D. Specific to zones T4, T4-O, T5, T5O, T6, SD6, SD7.

1. The landscape installed shall consist primarily of durable species tolerant of soil compaction.

2. Planter boxes should be bottomless, flow-through boxes with native plants, placed next to buildings and designed to capture building runoff. They may be placed in courtyards or adjacent sidewalks with runoff sent to them via French drains or hidden pipes. (Ord. 16945 § 2 (part), 2008)
(Ord. No. 17542, § 34, 4-26-2011; Ord. No. 17787, § 14, 5-15-2012; Ord. No. 17962, § 11, 3-5-2013)

21.50.140 Architectural standards.

A. General to zones T3, T4, T4-O, T5, T5-O, T6.

1. Reserved.

2. Street screens should be constructed of a material matching the adjacent building façade.

3. All openings, including porches, galleries, arcades and windows, with the exception of shop fronts, shall be square or vertical in proportion.

4. Openings above the first story shall not exceed fifty percent of the total building wall area, with each façade being calculated independently.

5. Reserved.

6. Gable roofs, if provided, shall be sloped with a grade no less than twenty-five percent, or no less than three inches of rise for every foot of run. Roofs for porches, dormers, and attached sheds may be no less than two inches of rise for every foot of run.

7. Reserved.

8. Flat roofs shall be enclosed by parapets a minimum of forty-two inches high, or as required to conceal mechanical equipment to the satisfaction of the CRC.

9. Reserved.

10. Accessory buildings, enclosures, and fences shall be compatible with the style of the buildings they serve. Chain-link fencing is specifically prohibited.

B. General to Special Districts SD3, SD4, SD5.

1. Reserved.

2. Street screens should be constructed of a material matching the adjacent building façade.

3. Openings above the first story shall no exceed fifty percent of the total building wall area, with each façade being calculated independently.

4. Reserved.

5. Gable roofs, if provided, shall be sloped with a grade no less than twenty-five percent, or no less than three inches of rise for every foot of run. Roofs for porches, dormers, and attached sheds may be no less than two inches of rise for every foot of run.

6. Flat and low-slope roofs shall be enclosed by parapets a minimum of forty-two inches high, or as required to conceal mechanical equipment. All roof screening of equipment shall be architecturally compatible with the building.

7. Reserved.

8. Reserved.

9. Stucco, masonry, and cementitious siding shall be kept neatly painted, if used.

10. Accessory buildings, enclosures, and fence shall be compatible with the style of the buildings they serve. Chain-link fencing is specifically prohibited.

11. Approval by director of aviation: The type of building construction proposed shall be subject to written prior approval of the director of aviation as authorized agent of declarant. Tenant is encouraged to use natural material and native rock in the exterior elevations of improvements.

C. Reserved.

D. Specific to Special District SD6.

1. Reserved.

2. Reserved.

3. Reserved.

4. Reserved.

5. Street screens should be constructed of a material matching the adjacent building façade.

6. Reserved.

7. Gable roofs, if provided, shall be sloped with a grade no less than twenty-five percent, or no less than three inches of rise for every foot of run. Roofs for porches, dormers, and attached sheds may be no less than two inches of rise for every foot of run.

8. Flat and low-slope roofs shall be enclosed by parapets a minimum of forty-two inches high, or as required to conceal mechanical equipment. All roof screening of equipment shall be architecturally compatible with the building.

9. Reserved.

10. Stucco, masonry, and cementitious siding shall be kept neatly painted, if used.

11. Accessory buildings, enclosures, and fences shall be compatible with the style of the buildings they serve. Chain-link fencing is specifically prohibited.

12. All south facing windows shall be shaded. (Ord. 16945 § 2 (part), 2008; Ord. No. 17378, § 2, 8-24-2010; Ord. No. 17542, §§ 35, 36, 4-26-2011; Ord. No. 17787, § 15, 5-15-2012; Ord. No. 18597, §§ 1—3, 11-15-2016; Ord. No. 18976, § 1, 9-3-2019)

Chapter 21.60

ENFORCEMENT AND PENALTY

Sections:

21.60.010 Civil and criminal penalties.

21.60.020 Criminal prosecution.

21.60.030 Civil remedies.

21.60.010 Civil and criminal penalties.

A. The city shall have the power to administer and enforce the provisions of this title as may be allowed by governing law. Any person violating any provision of this title is subject to suit for injunctive relief as well as prosecution for criminal violations. Any violation of this title is declared to be a nuisance. (Ord. 16945 § 2 (part), 2008)

21.60.020 Criminal prosecution.

A. Any person violating any provision of this title shall be guilty of a misdemeanor and upon conviction, be fined a sum not exceeding two thousand dollars. Each day that a provision of this title is violated shall constitute a separate offense. An offense under this title is a Class C misdemeanor. (Ord. 16945 § 2 (part), 2008)

21.60.030 Civil remedies.

A. Nothing in this title shall be construed as a waiver of the city's right to bring a civil action to enforce the provisions of this title and to seek remedies as allowed by law, including, but not limited to, the following:

1. Injunctive relief to prevent specific conduct that violates this title or to require specific conduct that is necessary for compliance with this title;

2. A civil penalty up to five hundred dollars a day when it is shown that the defendant was actually notified of the provisions of this title and after receiving notice committed acts in violation of this title or failed to take action necessary for compliance with this title; and

3. Any other available relief. (Ord. 16945 § 2 (part), 2008)

Chapter 21.70

DEFINITIONS OF TERMS

Sections:

21.70.010 Definitions.

21.70.010 Definitions.

This chapter provides definitions for terms in this title that are technical in nature or that otherwise may not reflect a common usage of the term. If a term is not defined in this chapter, then the CRC shall determine the correct definition. Items in italics refer to chapter, sections, or tables in the SmartCode.

"Accessory building" means an outbuilding with an accessory unit.

"Accessory unit" means an apartment not greater than four hundred forty square feet sharing ownership and utility connections with a principal building; it may or may not be within an outbuilding. See Table 10 and Table 17. (Syn: ancillary unit)

"Adjustments" mean a modification to the regulating plan which can be approved administratively by the CRC if the adjusted regulating plan complies with the standards and limits established in this title, falls with the parameters established under the tables contained in this title, and complies with the criteria established under Section 21.10.050.

"A-grid" means cumulatively, those thoroughfares that by virtue of their pre-existing pedestrian-supportive qualities, or their future importance to pedestrian connectivity, are held to the highest standards prescribed by this title. See B-grid. (Syn: primary grid.)

"Allée" means a regularly spaced and aligned row of trees usually planted along a thoroughfare or path.

"Apartment" means a residential unit sharing a building and a lot with other units and/or uses; may be for rent, or for sale as a condominium.

"Arcade" means a private frontage conventional for retail use wherein the facade is a colonnade that overlaps the sidewalk, while the facade at sidewalk level remains at the frontage line.

"Attic" means the interior part of a building contained within its roof structure.

"Avenue (AV)" means a thoroughfare of high vehicular capacity and low to moderate speed, acting as a short distance connector between urban centers, and usually equipped with a landscaped median.

"Backbuilding" means a single-story structure connecting a principal building to an outbuilding. See Table 17.

"Base density" means the number of dwelling units per acre before adjustment for other functions and/or TOR. See Density.

"Bed and breakfast" means an owner-occupied lodging type offering one to six bedrooms, permitted to serve breakfast in the mornings to guests.

"B-grid" means cumulatively, those thoroughfares that by virtue of their use, location, or absence of pre-existing pedestrian-supportive qualities, may meet a standard lower than that of the A-grid. See A-grid. (Syn: secondary grid.)

"Bicycle lane (BL)" means a dedicated lane for cycling within a moderate-speed vehicular thoroughfare, demarcated by striping.

"Bicycle route (BR)" means a thoroughfare suitable for the shared use of bicycles and automobiles moving at low speeds.

Bicycle trail (BT)" means a bicycle way running independently of a vehicular thoroughfare.

"Block" means the aggregate of private lots, passages, rear alleys and rear lanes, circumscribed by thoroughfares. "Block face" means the aggregate of all the building facades on one side of a block.

"Boulevard (BV)" means a thoroughfare designed for high vehicular capacity and moderate speed, traversing an urbanized area. Boulevards are usually equipped with slip roads buffering sidewalks and buildings.

"Brownfield" means an area previously used primarily as an industrial site. "BRT" See Bus Rapid Transit.

"Buffer" means a vegetated area, including trees, shrubs, and herbaceous vegetation, that exists or is established to protect a stream system, lake, reservoir, or coastal estuarine area. Alteration of this natural area is strictly limited.

"Bus rapid transit" means a rubber tire system with its own right-of-way or dedicated lane along at least seventy percent of its route, providing transit service that is faster than a regular bus.

"By right" means characterizing a proposal or component of a proposal for a building scale plan (Chapter 21.50) that complies with the SmartCode and is permitted and processed administratively, without public hearing. See Warrant and Variance.

"Civic" means the term defining not-for-profit organizations dedicated to arts, culture, education, recreation, government, transit and municipal parking.

"Civic building" means a building operated by not-for-profit organizations dedicated to arts, culture, education, recreation, government, transit, and municipal parking, or for use approved by the legislative body.

"Civic parking reserve" means parking structure or parking lot within a quarter-mile of the site that it serves. See Section 21.50.090 B.

"Civic space" means an outdoor area dedicated for public use. civic space types are defined by the combination of certain physical constants including the relationships among their intended use, their size, their landscaping and their enfronting buildings. See Table 13.

"Civic zone" means designation for public sites dedicated for Civic Buildings and civic space.

"CLD" or "clustered land development" means a community type structured by a standard pedestrian shed oriented toward a common destination such as a general store, meeting hall, schoolhouse, or church. CLD takes the form of a small settlement standing free in the countryside. See Table 2 and Table 14a. (Syn: Hamlet, conservation land development, cluster)

"Commercial" means the term collectively defining workplace, office, retail and lodging functions.

"Common destination" means an area of focused community activity, usually defining the approximate center of a pedestrian shed. It may include without limitation one or more of the following: a civic space, a Civic Building, a commercial center, or a transit station, and may act as the social center of a neighborhood.

"Common yard" means a planted private frontage wherein the facade is set back from the frontage line. It is visually continuous with adjacent yards. See Table 7.

"Community" means a regulatory category defining the physical form, density, and extent of a settlement. The three community types addressed in this title are CLD, TND, and RCD. Variants of TND and RCD for infill (Chapter 21.40) are called infill TND and infill RCD. The TOD community type may be created by an overlay on TND or RCD.

"Configuration" means the form of a building, based on its massing, private frontage and height.

"Conservation covenant" means a voluntary declaration by a property owner of a covenant that is filed of record in the El Paso County Real Property Records on property and is intended to preserve permanently the conservation values of an area.

"Consolidated review committee (CRC)" means an administrative committee overseen by the planning division comprised of employees from various city department having purview over matters encompassed by a project, as designated by the city manager or designee.

"Corridor" means a lineal geographic system incorporating transportation and/or greenway trajectories. A transportation corridor may be a lineal transect zone.

"Cottage" means an edgeyard building type A single-family dwelling, on a regular lot, often shared with an accessory building in the backyard.

"Courtyard building" means a building that occupies the boundaries of its lot while internally defining one or more private patios. See Table 9.

"CRC" means consolidated review committee.

"Curb" means the edge of the vehicular pavement that may be raised or flush to a swale. It usually incorporates the drainage system See Table 4A and Table 48.

"Density" means the number of dwelling units within a standard measure of land area.

"Design speed" means the velocity at which a thoroughfare tends to be driven without the constraints of signage or enforcement. There are four ranges of speed very low (below twenty MPH); low (twenty to twenty-five MPH); moderate (twenty-five to thirty-five MPH); high (above thirty-five MPH). Lane width is determined by desired design speed. See Table 3A.

"Developable areas" means lands other than those in the T-1 Natural.

"Disposition" means the placement of a building on its lot. See Table 9 and Table 17.

"Dooryard" means a private frontage type with a shallow setback and front garden or patio, usually with a low wall at the frontage line. See Table 7. (Variant lightwell, light court.)

"Drive" means a thoroughfare along the boundary between an urbanized and a natural condition, usually along a waterfront, park or promontory one side has the urban character of a thoroughfare, with sidewalk and building, while the other has the qualities of a road or parkway, with naturalistic planting and rural details.

"Driveway" means a vehicular lane within a lot, often leading to a garage. See Section 21.50.100 and Table 3B-f.

"Edgeyard building" means a building that occupies the center of its lot with setbacks on all sides. See Table 9.

"Effective parking" means the amount of parking required for mixed use after adjustment by the shared parking factor. See Table 11.

"Effective turning radius" means the measurement of the inside turning radius taking parked cars into account. See Table 17.

"Elevation" means an exterior wall of a building not along a frontage line. See Table 17. See facade.

"Encroachment" means any structural element that breaks the plane of a vertical or horizontal regulatory limit, extending into a setback, into the public frontage, or above a height limit.

"Enfront" means to place an element along a Frontage, as in "porches enfront the street".

"Ephemeral stream" means a stream that flows only during and immediately after precipitation events.

"Estate house" means an edgeyard building type A single-family dwelling on a very large lot of rural character, often shared by one or more accessory buildings. (Syn: country house, villa)

"Expression line" means a line prescribed at a certain level of a building for the major part of the width of a facade, expressed by a variation in material or by a limited projection such as a molding or balcony. See Table 8. (Syn: transition line.)

"Facade" means the exterior wall of a building that is set along a frontage line. See Elevation.

"Forecourt" means a private frontage wherein a portion of the facade is close to the frontage line and the central portion is set back. See Table 7.

"Frontage" means the area between a building facade and the vehicular lanes, inclusive of its built and planted components. Frontage is divided into private frontage and public frontage. See Table 4A and Table 7.

"Frontage line" means a lot line bordering a public frontage. Facades facing Frontage lines define the public realm and are therefore more regulated than the elevations facing other lot lines. See Table 17.

"Function" means the use or uses accommodated by a building and its lot, categorized as restricted, limited, or open, according to the intensity of the use. See Table 10 and Table 12.

"Gallery" means a private frontage conventional for retail use wherein the facade is aligned

close to the frontage line with an attached cantilevered shed or lightweight colonnade overlapping the sidewalk. See Table 7.

"Green" means a civic space type for unstructured recreation, spatially defined by landscaping rather than building frontages. See Table 13.

"Greenfield" means an area that consists of open or wooded land or farmland that has not been previously developed. "Greenway" means an open space corridor in largely natural conditions which may include trails for bicycles and pedestrians.

"Greenway" means an open space corridor in largely natural conditions which may include trails for bicycles and pedestrians. The trajectory of a greenway should lead through natural as well as urban areas, connecting residential areas to the bikeway and pedestrian network and with community areas such as schools and parks. Recreational opportunities and the landscaping pattern along greenways should be appropriate to its location: naturalistic within natural and rural zones, and formal within neighborhoods. A greenway may be independent of building frontages and may occur outside of an adjusted pedestrian shed.

"Hamlet." See CLD. (Syn: cluster, settlement.)

"Highway" means a rural and suburban thoroughfare of high vehicular speed and capacity. This type is allocated to the more rural transect zones (T-1, T-2, and T-3).

"Home occupation" means non-retail commercial enterprises. The work quarters should be invisible from the frontage, located either within the house or in an outbuilding. Permitted activities are defined by the restricted office category. See Table 10.

"House" means an edgeyard building type, usually a single-family dwelling on a large lot, often shared with an accessory building in the backyard. (Syn: single.)

"Infill" means new development on land that had been previously developed, including most Greyfield and Brownfield sites and cleared land within urbanized areas.

"Infill community plan" means an urban design plan for infill and revitalization that meets the intent of this title and the standards in Chapter 21.40.

"Infill regulating plan" means the map or maps that codify the essential elements of an infill community plan and which may be submitted to and approved by the city council to serve as the exclusive and mandatory zoning regulations for that land.

"Infill RCD" means a community type within most Urbanized, Greyfield, or Brownfield areas based on a long or linear pedestrian shed and consisting of T-4, T-5, and/or T-6 Zones. An infill RCD regulated by Chapter 21.40. See Section 21.40.020(C). (Var.: downtown)

"Infill TND" means a community type within most urbanized, Greyfield, or Brownfield areas based on a standard pedestrian shed and consisting of T-3, T-4, and/or T-5 Zones. An infill TND is regulated by Chapter 21.40. See Section 21.40.020(B). (Var: neighborhood.)

"Inn" means a lodging type, offering six to twelve bedrooms, permitted to serve breakfast in the mornings to guests. See Table 10.

"Layer" means a range of depth of a lot within which certain elements are permitted. See Table 17.

"Lightwell" means a private frontage type that is a below-grade entrance or recess designed to allow light into basements. See Table 7. (Syn: light court.)

"Linear pedestrian shed" means a pedestrian shed that is elongated along an important mixed use corridor such as a main street A linear pedestrian shed extends approximately one-fourth mile from each side of the corridor for the length of its mixed use portion. The resulting area is shaped like a lozenge. It may be used to structure a TND, RCD, infill TND, or infill RCD. (Syn: elongated pedestrian shed.)

"Liner building" means a building specifically designed to mask a parking lot or a parking structure from a frontage.

"Live-work" means a mixed use unit consisting of a commercial and residential function. The commercial function may be anywhere in the unit. It is intended to be occupied by a business operator who lives in the same structure that contains the commercial activity or industry. See Work-Live. (Syn: flexhouse.)

"Lodging" means premises available for daily and weekly renting of bedrooms. See Table 10 and Table 12.

"Long pedestrian shed" means a pedestrian shed that is an average one-half mile radius or two thousand six hundred forty feet, used when a transit stop (bus or rail) is present or proposed as the common destination. A long pedestrian shed represents approximately a ten-minute walk at a leisurely pace. It is applied to structure an RCD community type See Pedestrian shed.

"Lot" means a parcel of land accommodating a building or buildings of unified design. The size of a lot is controlled by its width in order to determine the grain (i.e., fine grain or coarse grain) of the urban fabric.

"Lot line" means the boundary that legally and geometrically demarcates a lot.

"Lot width" means the length of the principal frontage line of a lot.

"Main civic space" means the primary outdoor gathering place for a community. The main civic space is often, but not always, associated with an important Civic Building.

"Manufacturing" means premises available for the creation, assemblage and/or repair of artifacts, using table-mounted electrical machinery or artisanal equipment, and including their retail sale.

"Meeting hall" means a building available for gatherings, including conferences, that accommodates at least one room equivalent to a minimum of ten square feet per projected dwelling unit within the pedestrian shed in which it is located. adjacency, or in multiple buildings within the same area by adjacency

"Net site area" means all developable land within a site including thoroughfares but excluding land allocated as civic zones.

"Network pedestrian shed" means a pedestrian shed adjusted for average walk times along thoroughfares. This type may be used to structure infill community plans. See Table 17.

"New community plan" means an urban design plan for new development or redevelopment that meets the intent of this title and the standards in Chapter 21.30.

"New community regulating plan" means the map or maps that codify the essential elements of a new community plan and which may be submitted to and approved by the city council to serve as the exclusive and mandatory zoning regulations for that land.

"Office" means premises available for the transaction of general business but excluding retail, artisanal and manufacturing uses. See Table 10.

"Open space" means land intended to remain undeveloped; it may be reserved for civic space.

"Outbuilding" means an accessory building, usually located toward the rear of the same lot as a principal building, and sometimes connected to the principal building by a backbuilding. See Table 17.

"Park" means a civic space type that is a natural preserve available for unstructured recreation. See Table 13.

"Parking structure" means a building containing one or more stories of parking above grade.

"Parkway" means the element of the public frontage which accommodates street trees, whether continuous or individual.

"Passage (PS)" means a pedestrian connector, open or roofed, that passes between buildings to provide shortcuts through long blocks and connect rear parking areas to frontages.

"Path (PT)" means a pedestrian way traversing a park or rural area, with landscape matching the contiguous open space, ideally connecting directly with the urban sidewalk network.

"Pedestrian shed" means an area that is centered on a common destination. Its size is related to average walking distances for the applicable community type. Pedestrian sheds are applied to

structure communities. See Standard, Long, Linear or Network pedestrian shed. (Syn: walkshed, walkable catchment.)

"Planning division" means the planning division of the planning and economic development department.

"Plaza" means a civic space type designed for civic purposes and commercial activities in the more urban transect zones, generally paved and spatially defined by building frontages.

"Principal building" means the main building on a lot, usually located toward the frontage. See Table 17.

"Principal entrance" means the main point of access for pedestrians into a building.

"Principal frontage" means on corner lots, the private frontage designated to bear the address and principal entrance to the building, and the measure of minimum lot width. Prescriptions for the parking layers pertain only to the principal frontage. Prescriptions for the first layer pertain to both frontages of a corner lot. See Frontage.

"Private frontage" means the privately held layer between the frontage line and the principal building facade. See Tables 7 and 17.

"Promontory" means a small open space located at the edge of a bluff or cliff primarily for viewing the natural landscape.

"Public frontage" means the area between the curb of the vehicular lanes and the frontage line. See Tables 4A and 4B. RCD. See Regional Center Development.

"Rambla" means a linear open space between one-way streets that extends for at least three successive blocks.

"Rear alley (RA)" means a vehicular way located to the rear of lots providing access to service areas, parking, and outbuildings and containing utility easements. Rear alleys should be paved from building face to building face, with drainage by inverted crown at the center or with roll curbs at the edges.

"Rear lane (RL)" means a vehicular way located to the rear of lots providing access to service areas, parking, and outbuildings and containing utility easements. Rear lanes may be paved lightly to driveway standards. The streetscape consists of gravel or landscaped edges, has no raised curb, and is drained by percolation.

"Rearyard building" means a building that occupies the full Frontage line, leaving the rear of the lot as the sole yard. See Table 9. (Var: Rowhouse, Townhouse, Apartment House)

"Recess line" means a line prescribed for the full width of a facade, above which there is a stepback of a minimum distance, such that the height to this line (not the overall building height) effectively defines the enclosure of the enfronting public space. See Table 8.

"Regional center" means regional center development or RCD.

"Regional center development (RCD)" means a community type structured by a long pedestrian shed or linear pedestrian shed, which may be adjoined without buffers by one or several standard pedestrian sheds, each with the individual transect zone requirements of a TND. RCD takes the form of a high-density mixed use center connected to other centers by transit. See infill RCD, Tables 2 and 14a. (Var: town center, downtown. Syn: Regional Center)

"Regulating plan" means a map or set of maps that shows the transect zones, civic zones, special districts (if any), thoroughfare network, and special requirements (if any), of areas subject to, or potentially subject to, regulation by the SmartCode.

"Residential" means characterizing premises available for long-term human dwelling.

"Retail" means characterizing premises available for the sale of merchandise and food service. See Tables 10 and 12.

"Retail frontage" means Frontage designated on a regulating plan that requires or recommends the provision of a shopfront, encouraging the ground level to be available for retail use. See special requirements.

"Road (RD)" means a local, rural and suburban thoroughfare of low-to-moderate vehicular speed and capacity This type is allocated to the more rural transect zones (T1—T3). See Table 3A.

"Rowhouse" means a single-family dwelling that shares a party wall with another of the same type and occupies the full frontage line. See Rearyard Building. (Syn: Townhouse)

"Secondary frontage" means on corner lots, the private frontage that is not the principal frontage. As it affects the public realm, its first layer is regulated. See Table 17.

"Setback" means the area of a lot measured from the lot line to a building facade or elevation that is maintained clear of permanent structures, with the exception of encroachments listed in Section 21.50.070. See Table 14g (Var: build-to-line.)

"Shared parking factor" means an accounting for parking spaces that are available to more than one function See Table 11.

"Shopfront" means a private frontage conventional for retail use, with substantial glazing and an awning, wherein the facade is aligned close to the frontage line with the building entrance at sidewalk grade. See Table 7.

"Sidewalk" means the paved section of the public frontage dedicated exclusively to pedestrian activity.

"Sideyard building" means a building that occupies one side of the lot with a setback on the other side. This type can be a single or twin depending on whether it abuts the neighboring house. See Table 9.

"Slip road" means an outer vehicular lane or lanes of a thoroughfare, designed for slow speeds while inner lanes carry higher speed traffic, and separated from them by a planted median. (Syn: access lane, service lane)

"SmartCode planning area" means parcel on a zoning map where the SmartCode is the exclusive and mandatory zoning regulation.

"Special district (SD)" means an area that, by its intrinsic function, disposition, or configuration, cannot or should not conform to one or more of the normative community types or transect zones specified by the SmartCode.

"Special requirements" means provisions of Sections 21.30.090, 21.40.070 and 21.50.030 of this title and/or the associated designations on a regulating plan or other map for those provisions.

"Specialized building" means a building that is not subject to residential, commercial, or lodging classification. See Table 9.

"Square" means a civic space type designed for unstructured recreation and civic purposes, spatially defined by building frontages and consisting of paths, lawns and trees, formally disposed. See Table 13.

"Standard pedestrian shed" means a pedestrian shed that is an average one-fourth mile radius or one thousand three hundred twenty feet, about the distance of a five-minute walk at a leisurely pace. See Pedestrian Shed.

"Stepback" means a building setback of a specified distance that occurs at a prescribed number of stories above the ground. See Table 8.

"Stoop" means a private frontage wherein the facade is aligned close to the frontage line with the first story elevated from the sidewalk or privacy, with an exterior stair and landing at the entrance. See Table 7.

"Stormwater open space" means a natural open area to be used to help manage storm water, reduce flooding risk and improve water quality as its primary purposes, while still permitting passive recreational use of the open space as secondary purposes to the area. Water, waste water, and stormwater utility systems within areas designated for stormwater open space shall be designed with environmentally sensitive infrastructure and constructed with a low impact development (LID) approach to the extent permitted in the city's subdivision regulations. Any area designated as stormwater open space shall require the approval of the Floodplain Administrator, shall conform to the master stormwater management plan and open space master plan of the city, and shall be shown within the boundaries of any required land study, subdivision plat, detailed site development plan, master zoning plan, SmartCode regulating plan, or any other platting or zoning document as may be required by the city.

"Story" means a habitable level within a building, excluding an attic or raised basement. See Section 21.50.070 A. and Table 8.

"Streams" means perennial and intermittent watercourses identified through site inspection and US Geological Survey (USGS) maps. Perennial streams are those depicted on a USGS map with a solid blue line. Intermittent streams are those depicted on a USGS map with a dotted blue line. Street (ST): A local urban thoroughfare of low speed and capacity. See Tables 3B and 48.

"Streetscreen" means a freestanding wall built along the frontage line, or coplanar with the facade. It may mask a parking lot from the thoroughfare, provide privacy to a side yard, and/or strengthen the spatial definition of the public realm. (Syn: streetwall.) See Section 21.50.070 F.5.

"Substantial modification" means alteration to a building that is valued at more than fifty percent of the replacement cost of the entire building, if new.

"Swale" means a low or slightly depressed natural area for drainage.

"Terminated vista" means a location at the axial conclusion of a thoroughfare. A building located at a terminated vista designated on a regulating plan is required or recommended to be designed in response to the axis.

"Third place" means a term used in the concept of community building to refer to social surroundings separate from the two usual social environments of home and workplace. Criteria for a third place include the following: highly accessible, proximate for many within walking distance, involve regulars, and inexpensive food and drink are important. Coffee shops and cafes are often used as a neighborhood's third place.

"Thoroughfare" means a way for use by vehicular and pedestrian traffic and to provide access to lots and open spaces, consisting of vehicular lanes and the public frontage. See Tables 3A, 3B and 17a.

TND. "Traditional neighborhood development" means a community type structured by a standard pedestrian shed oriented toward a common destination consisting of a mixed use center or corridor, and in the form of a medium-sized settlement near a transportation route. See Tables 2 and 14a. (Syn: village. Variant: Infill TND, neighborhood.)

TOD: "Transit-Oriented Development." TOD is created by an overlay on all or part of a TND or RCD, permitting increased density to support rail or bus rapid transit (BRT) as set forth in Section 21.50.090 B.4.

Townhouse. See Rearyard Building. (Syn: Rowhouse)

"Transect" means a cross-section of the environment showing a range of different habitats. The rural-urban transect of the human environment used in the SmartCode template is divided into six transect zones. These zones describe the physical form and character of a place, according to the density and intensity of its land use and urbanism.

"transect zone (T-Zone)" means one of several areas on a zoning map regulated by the SmartCode. transect zones are administratively similar to the land use zones in conventional codes, except that in addition to the usual building use, density, height, and setback requirements, other elements of the intended habitat are integrated, including those of the private lot and building and public frontage. See Table 1.

"Turning radius" means the curved edge of a thoroughfare at an intersection, measured at the inside edge of the vehicular tracking, The smaller the turning radius, the smaller the pedestrian crossing distance and the more slowly the vehicle is forced to make the turn. See Tables 3B and 17.

"T-Zone" means transect zone.

"Urbanism" means collective term for the condition of a compact, mixed use settlement, including the physical form of its development and its environmental, functional economic, and sociocultural aspects.

"Urbanized" means generally, developed, Specific to the SmartCode, developed at T-3 (Sub-Urban) density or higher.

"Utility green space" means an area of protected or conserved land, larger than ten acres, where development is limited or controlled to preserve large areas of undisturbed open space as its primary purpose, while still permitting passive recreational uses and necessary water, waste water and stormwater utility systems as secondary purposes to the area. Utility green space shall be shown within the boundaries of any required land study, subdivision plat, detailed site development plan, master zoning plan, SmartCode regulating plan, or any other platting or zoning document as may be required by the city.

"Variance" means a ruling that would permit a practice that is not consistent with either a specific provision or the intent of this title (Section 21.10.030), Variances are usually granted by the zoning board of adjustment in a public hearing, See Section 21.10.050.

'Warrant" means a ruling that would permit a practice that is not consistent with a specific provision of this title code, but that is justified by its intent (Section 21.10.030), warrants are usually granted administratively by the CRC. See Section 21.10.050.

"Work-live" means a mixed use unit consisting of a commercial and residential function. It typically has a substantial commercial component that may accommodate employees and walk-in trade. The unit is intended to function predominantly as work space with incidental residential accommodations that meet basic habitability requirements. See Live-Work, (Syn: Live-With)

"Yield" means characterizing a thoroughfare that has two-way traffic but only one effective travel lane because of parted cars, necessitating slow movement and driver negotiation.

"Zoning map" means the Official Zoning Map Series, City of El Paso, Texas that delineates the boundaries of individual zoning districts. See Section 20.06.030. (Ord. 16945 § 2 (part), 2008)
(Ord. No. 17441, §§ 4, 5, 10-26-2010; Ord. No. 17542, § 37, 4-26-2011; Ord. No. 17787, § 16, 5-15-2012; Ord. No. 17802, § 1, 6-5-2012; Ord. No. 17903, § 3, 11-6-2012; Ord. No. 17962, § 12, 3-5-2013; Ord. No. 18976, § 2, 9-3-2019)

Chapter 21.80

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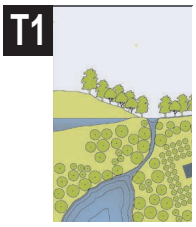
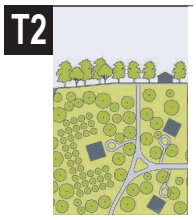
21.80.010 Table 1: Transect Zone Descriptions.

This table describes of the intent of each Transect Zone.



T-1 Natural

General Character:	Natural landscape with some agricultural use
Building Placement:	Not applicable
Frontage Types:	Not applicable
Typical Building Height:	Not applicable
Type of Civic Space:	Parks, Greenways

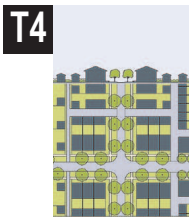


T-2 RURAL

General Character:	Primarily agricultural with woodland & wetland and scattered building
Building Placement:	Variable Setbacks
Frontage Types:	Not applicable
Typical Building Height:	1- to 2-Story
Type of Civic Space:	Parks, Greenways

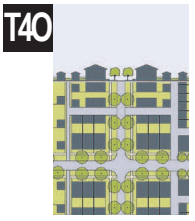
T-3 SUB-URBAN

General Character:	Lawns, and landscaped yards surrounding detached single-family houses; pedestrians occasionally
Building Placement:	Large and variable front and side yard Setbacks
Frontage Types:	Porches, fences, naturalistic tree planting
Typical Building Height:	1- to 2-Story
Type of Civic Space:	Parks, Greenways



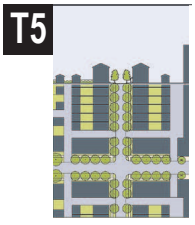
T-4 GENERAL URBAN

General Character:	Mix of Houses, Townhouses & small Apartment buildings, with scattered Commercial activity; balance between landscape and buildings; presence of pedestrians
Building Placement:	Shallow to medium front and side yard Setbacks
Frontage Types:	Porches, fences, Stoops, Dooryards
Typical Building Height:	2- to 3-Story
Type of Civic Space:	Squares, Greens



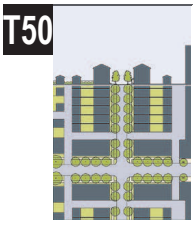
T-4O GENERAL URBAN-OPEN

General Character:	Mix of Houses, Townhouses & small Apartment buildings, with open Commercial activity; predominantly attached buildings; trees within the public right-of-way; substantial pedestrian activity
Building Placement:	Shallow Setbacks or none; buildings oriented to street defining a street wall
Frontage Types:	Shopfronts, Porches, fences, Stoops, Dooryards
Typical Building Height:	2- to 3-Story
Type of Civic Space:	Plazas, Squares, Greens, median landscaping



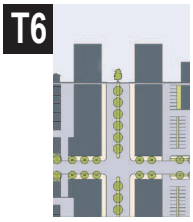
T-5 URBAN CENTER

General Character:	Shops mixed with Townhouses, larger Apartment houses, Offices, workplace, and Civic Buildings; predominantly attached buildings; trees within the public right-of-way; substantial pedestrian activity
Building Placement:	Shallow Setbacks or none; buildings oriented to street defining a street wall
Frontage Types:	Stoops, Shopfronts, Galleries
Typical Building Height:	2- to 5-Story with some variation
Type of Civic Space:	Parks, Plazas and Squares, median landscaping



T-5O URBAN CENTER-OPEN

General Character:	Shops mixed with Townhouses, larger Apartment houses, Offices, workplace, and Civic Buildings; predominantly attached buildings; trees within the public right-of-way; substnatial pedestrian activity
Building Placement:	Shallow Setbacks or none; buildings oriented to street, defining a street wall
Frontage Types:	Stoops, Shopfronts, Galleries, and Arcades
Typical Building Height:	2- to 6-Story with some variation
Type of Civic Space:	Parks, Plazas and Squares; median landscaping



T-6 URBAN CORE

General Character:	Medium to high-Density Mixed Use buildings, entertainment, Civic and cultural uses. Attached buildings forming a continuous street wall; trees within the public right-of-way; highest pedestrian and transit activity
Building Placement:	Shallow Setbacks or none; buildings oriented to street, defining a street wall
Frontage Types:	Stoops, Dooryards, Forecourts, Shopfronts, Galleries, and Arcades
Typical Building Height:	4-plus Story with a few shorter buildings
Type of Civic Space:	Parks, Plazas and Squares; median landscaping

(Ord. 16945 § 2 (part, 2008)
(Ord. No. 17542, § 38(Exh. A), 4-26-2011; Ord. No. 17787, § 17(Exh. A), 5-15-2012)

21.80.020 Table 2: Smart Code Signage Module.

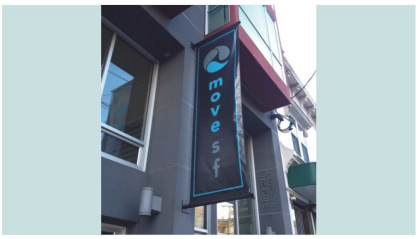
TABLE 2A: SIGN HARDWARE TYPE OVERVIEW*		
* The photographs and renderings depicted herein are for illustrative purposes only and are not intended to be regulatory in nature.	**Sign Style Permitted** Sign Style Not Permitted	
 **Banner:** A Banner is any type of sign copy placed on a flexible material other than an awning.	Awning **Blade** Hanging Marquee Monument Mural	Roof Sidewalk **Suspended** **Wall** **Window** Yard
Cabinet: Copy on a Cabinet is fabricated into the box, so that the hardware of the sign and copy appear to be one piece. Cabinet signs may not be internally illuminated.	Awning **Blade** **Hanging** **Marquee** Monument Mural	**Roof** Sidewalk Suspended **Wall** **Window** **Yard**
Painted: Sign copy may be painted directly onto the face of a building, awning or business window.	**Awning** Blade Hanging Marquee Monument **Mural**	Roof Sidewalk Suspended Wall **Window** Yard
Plaque: A Plaque consists of copy that is carved, molded, or printed onto a framing surface. A Plaque appears from the public right-of-way as one contiguous piece of hardware.	Awning **Blade** **Hanging** Marquee **Monument** Mural	Roof Sidewalk **Suspended** **Wall** **Window** **Yard**
Printed: The Printed hardware type specifically refers to sign copy that is printed onto a permanent awning.	**Awning** Blade Hanging Marquee Monument Mural	Roof Sidewalk Suspended Wall Window Yard
Programmable: A sign utilizing the Programmable hardware type has changeable copy area; either electronic (called CEVM in Title 20) or analog (track letter). Signs with changeable copy used in a Sidewalk orientation are not included.	Awning Blade **Hanging** **Marquee** **Monument** Mural	Roof Sidewalk Suspended **Wall** **Window** **Yard**

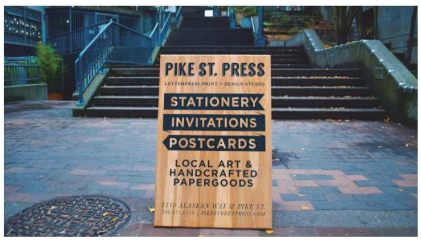
TABLE 2A: SIGN HARDWARE TYPE OVERVIEW*		
* The photographs and renderings depicted herein are for illustrative purposes only and are not intended to be regulatory in nature.	**Sign Style Permitted** Sign Style Not Permitted	
Projected: A sign utilizing the Projected hardware type consists of copy that projects from the flat surface to which it is affixed. Unlike a Plaque hardware type, the copy elements of a sign using the Projected hardware type may be affixed directly to a face, and may project to a greater degree.	**Awning** Blade Hanging **Marquee** **Monument** Mural	**Roof** Sidewalk Suspended **Wall** Window **Yard**
Stake: A sign planted in a front yard that is placed for a limited amount of time. Signs utilizing the Stake hardware type are portable, freestanding, and impermanent by design. This hardware type may only be utilized for Temporary signs.	Awning Blade Hanging Marquee Monument Mural	Roof Sidewalk Suspended Wall Window **Yard**
 **Standing:** A sign utilizing the Standing hardware type may be placed on a sidewalk to show, for example, a restaurant menu, daily specials or sales, or special event notifications, to pedestrians. Signs utilizing the Standing hardware type are portable and freestanding.	Awning Blade Hanging Marquee Monument Mural	Roof **Sidewalk** Suspended Wall Window Yard
Alternative: Signs utilizing an Alternative hardware type do not conform to any of the hardware types defined in this module, but nevertheless meet the design standards and intent of the SmartCode, as regulated by section 21.50.120.080.	**Awning** **Blade** **Hanging** **Marquee** **Monument** Mural	**Roof** **Sidewalk** **Suspended** **Wall** **Window** **Yard**

TABLE 2B: SPECIFIC HARDWARE TYPE STANDARDS

HARDWARE TYPE	PERMITTED MATERIALS
Banner	Vinyl
Cabinet	Any combination of wood, metal, acrylic or plastic
Painted	If applied to exterior, any paint designed for exterior applications
Plaque	Any combination of wood, metal, stone, acrylic or plastic
Printed	N/A
Programmable	Any combination of wood, metal, stone, acrylic or plastic
Projected	Any combination of wood, metal, stone, acrylic or plastic
Stake	Wood, metal, acrylic, plastic or vinyl
Standing	Wood, metal, plastic or hardboard
Alternative	N/A

SIGN ILLUMINATION STANDARDS					
HARDWARE TYPE	HALO LIGHTING	EXTERNAL	INDIVIDUAL BULB	NEON TUBE	ALTERNATIVE
Banner	X	X	X	X	X
Cabinet	O	O	X	X	X
Painted	X	O	X	X	X
Plaque	O	O	O	O	O
Printed	X	O	X	X	X
Programmable	X	O	X	X	O
Projected	O	O	O	O	O
Stake	X	X	X	X	X
Standing	X	X	X	X	X
Alternative	O	O	O	O	O

O = Permitted

X = Not Permitted

TABLE 2C: ILLUMINATION TYPES OVERVIEW*	
	Halo Lighting: Opaque sign copy can be illuminated by diffuse light from sources mounted behind copy, creating a 'halo' effect around the copy elements. Light sources should not be visible from the public right-of-way.
	External: Signage can be illuminated with spotlights aimed upward at copy, or hooded lamps that shine downward upon it. Each light source is fully independent of the sign itself.
	Individual Exposed Bulb: Individual exposed bulbs can be used to highlight particular elements of sign copy, or to animate a sign to make it more eye-catching. Individual bulbs may project from a flat sign or be embedded within a Projected sign, but the light source is always visible from the public right-of-way.
	Neon Tube: Sculpted neon tubes can be used to highlight particular elements of sign copy, or to animate a sign to make it more eye-catching. The light source should always be visible from the public right-of-way.
	Alternative: Upon submittal of an Alternative sign style proposal, an applicant may propose the use of another illumination method not listed in the module.

TABLE 2D: SIGN ORIENTATION TYPE OVERVIEW*

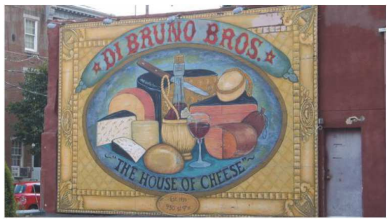
		Sign Hardware Permitted / Sign Hardware Not Permitted
	Awning: This orientation type includes signs placed atop or upon an awning, canopy, or sidewalk arcade above a storefront. Signage can be printed directly onto a fabric awning, or, if the awning is of a rigid construction, may be mounted upon it.	Banner, Cabinet, **Painted**, Plaque, **Printed**; Programmable, **Projected**, Stake, Standing, **Alternative** **GROUND LEVEL** UPPER LEVEL
	Blade: Signs utilizing the Blade orientation type are mounted perpendicular to, and are fully supported by, a building face.	**Banner**, **Cabinet**, Painted, **Plaque**, Printed; Programmable, Projected, Stake, Standing, **Alternative** **GROUND LEVEL** **UPPER LEVEL**
	Hanging: Signs utilizing the Hanging orientation type are fastened to and hang below any permanent eave, roof, awning, or bracket.	Banner, **Cabinet**, Painted, **Plaque**, Printed; **Programmable**, Projected, Stake, Standing, **Alternative** **GROUND LEVEL** UPPER LEVEL
	Marquee: This orientation type is applicable to signs that are mounted upon a marquee; a cantilevered roof-like structure that hangs over the building entrance and has a face parallel to the building face. Signs utilizing this orientation typically adorn performing arts venues.	Banner, **Cabinet**, Painted, Plaque, Printed; **Programmable**, **Projected**, Stake, Standing, **Alternative** **GROUND LEVEL** UPPER LEVEL
	Monument: This orientation type is applicable to freestanding signs that sit on a wall or pedestal in front of a building. A sign utilizing this orientation type may be used as a directory for multiple businesses, or just one.	Banner, Cabinet, Painted, **Plaque**, Printed; **Programmable**, **Projected**, Stake, Standing, **Alternative** **GROUND LEVEL** UPPER LEVEL
	**Mural:** This orientation type is applicable to advertising that is painted directly onto a building face, typically along a side street or alley. Any sign copy painted onto a wall is classified as a Mural sign.	Banner, Cabinet, **Painted**, Plaque, Printed; Programmable, Projected, Stake, Standing, Alternative **GROUND LEVEL** UPPER LEVEL

TABLE 2D: SIGN ORIENTATION TYPE OVERVIEW*		
		Sign Hardware Permitted Sign Hardware Not Permitted
	Roof: A sign utilizing the Roof orientation type is erected upon, over, or above a roof.	Banner Programmable **Cabinet** **Projected** **Painted** Stake Plaque Standing Printed **Alternative** GROUND LEVEL **UPPER LEVEL**
	Sidewalk: This orientation type includes any portable sign placed on sidewalks or medians. They are typically used to advertise daily specials or otherwise entice pedestrians to patronize a business.	Banner Programmable Cabinet Projected Painted Stake Plaque **Standing** Printed **Alternative** **GROUND LEVEL** UPPER LEVEL
	Suspended: A sign utilizing this orientation type is suspended above a driveway, entrance, or the sidewalk, and is fastened to a building, pole, or other permanent feature on both ends.	**Banner** Programmable Cabinet Projected Painted Stake **Plaque** Standing Printed **Alternative** **GROUND LEVEL** **UPPER LEVEL**
	Wall: This orientation type includes signs that are permanently affixed against a building face. Signage affixed to masonry walls, fences or gates, and individual cut letters affixed directly to a building face utilize the Wall orientation type.	**Banner** **Programmable** **Cabinet** **Projected** Painted Stake **Plaque** Standing Printed **Alternative** **GROUND LEVEL** **UPPER LEVEL**
	Window: Signs utilizing the Window orientation type consist of copy that is painted onto a window face, or sign hardware that is displayed through the window from inside the storefront.	**Banner** **Programmable** **Cabinet** Projected **Painted** Stake **Plaque** Standing Printed **Alternative** **GROUND LEVEL** **UPPER LEVEL**
	Yard: This orientation type applies to free-standing signs that sit in the front yard of a business, typically in a residential type building. The Yard orientation type is distinct from the Monument orientation type in that its copy area is raised off of the ground and supported with posts or poles.	Banner **Programmable** **Cabinet** **Projected** Painted **Stake** **Plaque** Standing Printed **Alternative** **GROUND LEVEL** UPPER LEVEL

TABLE 2E: SPECIFIC SIGN ORIENTATION TYPE STANDARDS—AWNING*

AWNING

This orientation type includes sign hardware placed atop or upon an awning, canopy, or sidewalk arcade above a storefront. Sign copy can be printed or painted directly onto an awning, or, if the awning is of a rigid construction, sign hardware may be mounted upon it.

SIGN FREQUENCY

One per frontage

LOCATION RESTRICTIONS

An Awning sign shall not obscure more than 20% of the total area of the second floor windows

DIMENSIONAL STANDARDS

Sign Area: No more than 75% of the surface of the awning face Ⓐ

OTHER RESTRICTIONS

Arcades, awnings, canopies and galleries shall comply with the standards described in Title 15

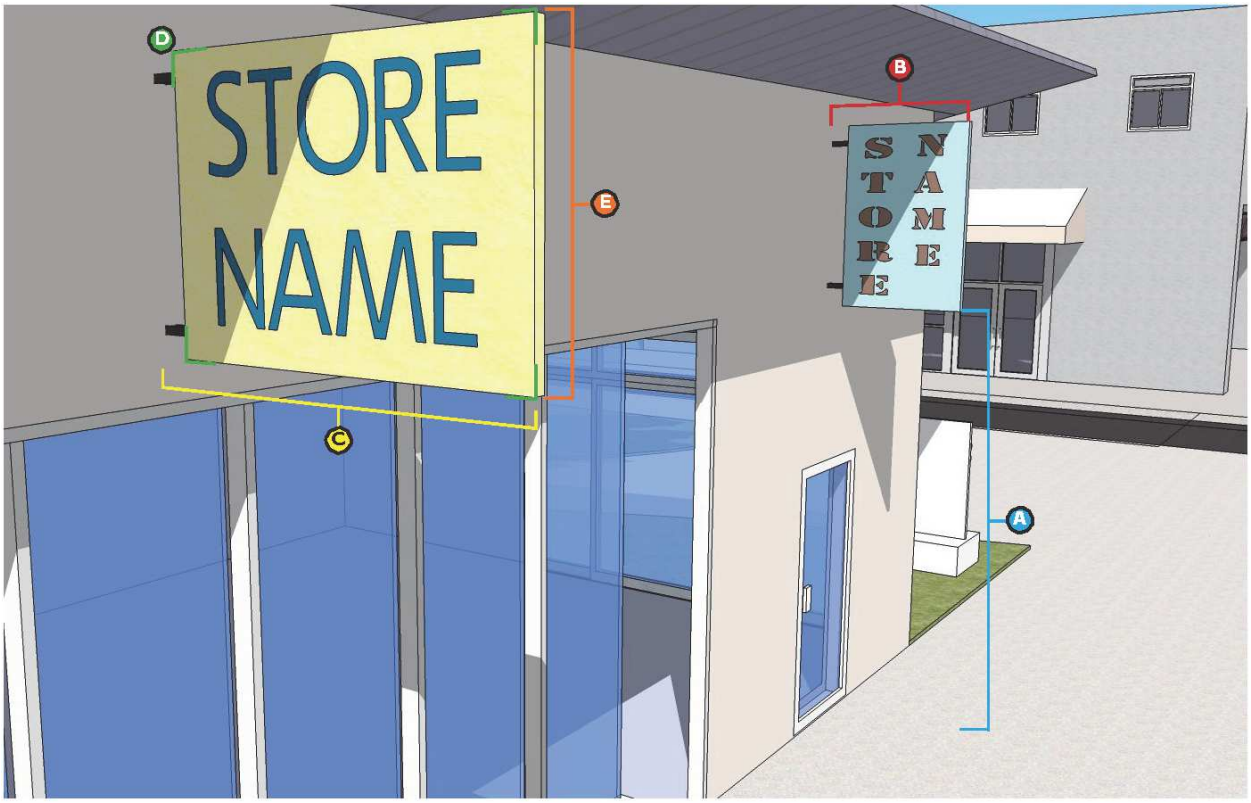
HARDWARE

Banner
Cabinet
Painted
Plaque
Printed
Programmable
Projected
Stake
Standing
Alternative

ILLUMINATION

Backlighting
External
Individual Bulb
Neon Tube
Alternative

TABLE 2F: SPECIFIC SIGN ORIENTATION TYPE STANDARDS—BLADE*



BLADE

Signs utilizing the Blade orientation type are mounted perpendicular to, and are fully supported by, a building face.

SIGN FREQUENCY

One sign with a maximum of two faces per storefront

LOCATION RESTRICTIONS

Minimum sidewalk clearance of 8 feet Ⓐ / 16 feet over driveways

Signs with vertically oriented copy shall not project more than 5 feet from building face Ⓑ

Signs with horizontally oriented copy shall not project more than 6 feet from building face Ⓒ

Signs shall not extend above the roofline of the associated building

DIMENSIONAL STANDARDS

Sign Area:	No more than 8 square feet per every 10 lineal feet of associated frontage Ⓓ
Height:	No more than 40% the height of associated building Ⓔ, except signs above a marquee, then no more than 60% the height of associated building

OTHER RESTRICTIONS

Signs encroaching into the public right-of-way shall be subject to the special privilege license and permit requirements of Title 15

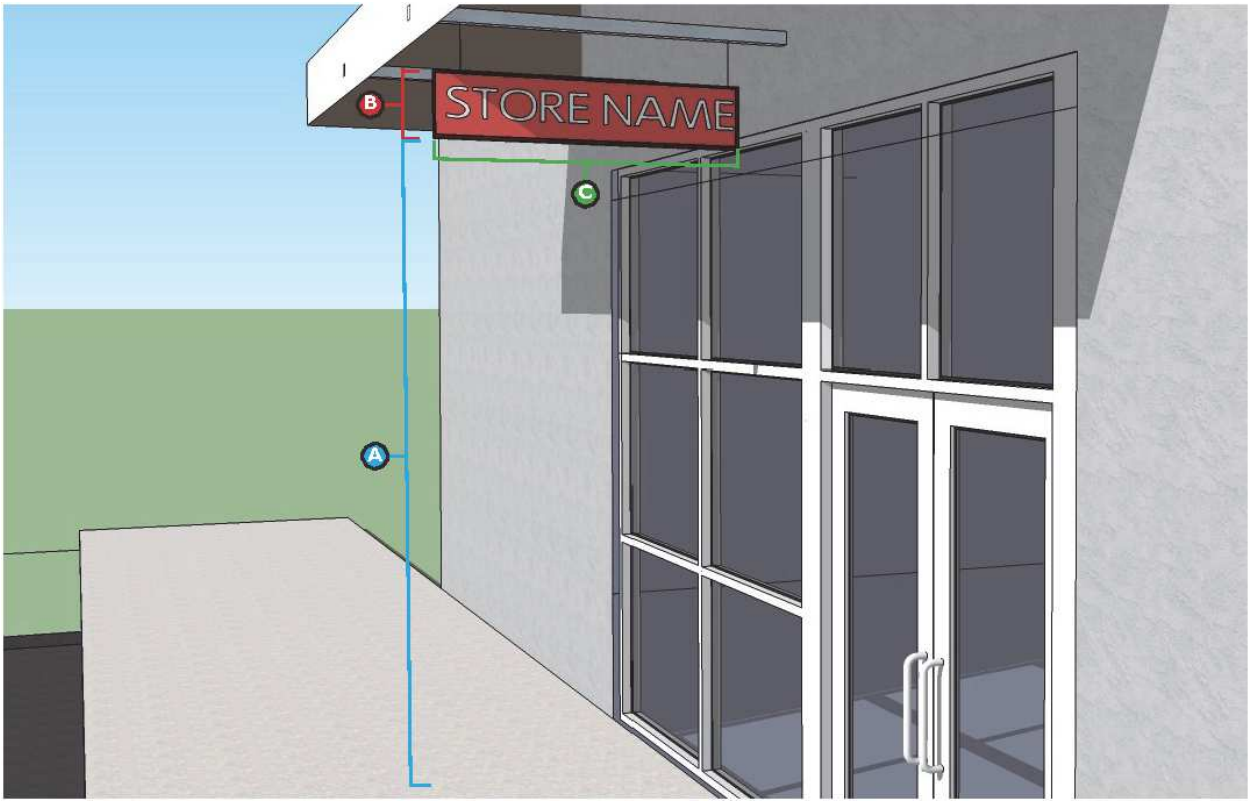
HARDWARE

Banner
Cabinet
Painted
Plaque
Printed
Programmable
Projected
Stake
Standing
Alternative

ILLUMINATION

Backlighting
External
Individual Bulb
Neon Tube
Alternative

TABLE 2G: SPECIFIC SIGN ORIENTATION TYPE STANDARDS—HANGING*



HANGING

Signs utilizing the Hanging orientation type are fastened to and hang below any permanent eave, roof, awning, or bracket.

SIGN FREQUENCY

One sign with a maximum of two faces per business entrance

LOCATION RESTRICTIONS

Minimum sidewalk clearance of 8 feet Ⓐ

Minimum sidewalk clearance of 16 feet over driveways or alleys

DIMENSIONAL STANDARDS

Height:	Maximum 5 feet Ⓑ
Width:	No more than 80% the width of the associated permanent eave, roof, awning, or bracket Ⓒ

OTHER RESTRICTIONS

Signs with Cabinet hardware shall have sign copy on no more than two faces

All sign copy shall be oriented perpendicular to the building face

Not permitted on upper floors

Arcades, awnings, canopies and galleries shall comply with the standards described in Title 15

HARDWARE

Banner
Cabinet
Painted
Plaque
Printed
Programmable
Projected
Stake
Standing
Alternative

ILLUMINATION

Backlighting
External
Individual Bulb
Neon Tube
Alternative

TABLE 2H: SPECIFIC SIGN ORIENTATION TYPE STANDARDS—MARQUEE*

MARQUEE

This orientation type is applicable to signs that are mounted upon a marquee; a cantilevered roof-like structure that hangs over the building entrance and has a face parallel to the building face. Signs utilizing this orientation typically adorn performing arts venues.

SIGN FREQUENCY

Maximum 3 per marquee, and one per face

LOCATION RESTRICTIONS

Signs shall be mounted atop or upon a marquee

Signs shall not extend above the roofline of the associated building

DIMENSIONAL STANDARDS

Sign Area: No more than ¾ the area of the marquee per sign Ⓐ

OTHER RESTRICTIONS

Signs encroaching into the public right-of-way shall be subject to the special privilege license and permit requirements of Title 15

HARDWARE

Banner
Cabinet
Painted
Plaque
Printed
Programmable
Projected
Stake
Standing
Alternative

ILLUMINATION

Backlighting
External
Individual Bulb
Neon Tube
Alternative

TABLE 2J: SPECIFIC SIGN ORIENTATION TYPE STANDARDS—MONUMENT*

MONUMENT

This orientation type is applicable to freestanding sign hardware that sits on a wall or pedestal in front of a building. A sign utilizing this orientation type may be used as a directory for multiple businesses, or just one.

SIGN FREQUENCY

One sign with a maximum of four faces per building

LOCATION RESTRICTIONS

Permitted within landscaped areas only

DIMENSIONAL STANDARDS

Sign Area: No more than 48 square feet Ⓐ

Height: 6 feet maximum Ⓑ

OTHER RESTRICTIONS

The area of a sign shall be calculated to exclude the base of the structure on which the sign is mounted or within which the sign is integrated.

HARDWARE

Banner
Cabinet
Painted
Plaque
Printed
Programmable
Projected
Stake
Standing
Alternative

ILLUMINATION

Backlighting
External
Individual Bulb
Neon Tube
Alternative

TABLE 2K: SPECIFIC SIGN ORIENTATION TYPE STANDARDS—MURAL*

MURAL

This orientation type is applicable to advertising that is painted directly onto a building face, typically along a side street or alley.

SIGN FREQUENCY
One per building face

LOCATION RESTRICTIONS
N/A

DIMENSIONAL STANDARDS
Ground Level Signs
Sign Area: No more than 196 square feet
Upper Level Signs
Sign Area: No more than 10% of the total area of the associated façade Ⓐ

OTHER RESTRICTIONS
A Mural sign shall not obscure any fenestration

HARDWARE
Banner
Cabinet
Painted
Plaque
Printed
Programmable
Projected
Stake
Standing
Alternative

ILLUMINATION
Backlighting
External
Individual Bulb
Neon Tube
Alternative

TABLE 2M: SPECIFIC SIGN ORIENTATION TYPE STANDARDS—ROOF*

ROOF
A sign utilizing the Roof orientation type is erected upon, over, or above a roof.

SIGN FREQUENCY
One sign with a maximum of two faces per building

LOCATION RESTRICTIONS
Sign copy must be parallel to a public right-of-way adjacent to the building

DIMENSIONAL STANDARDS

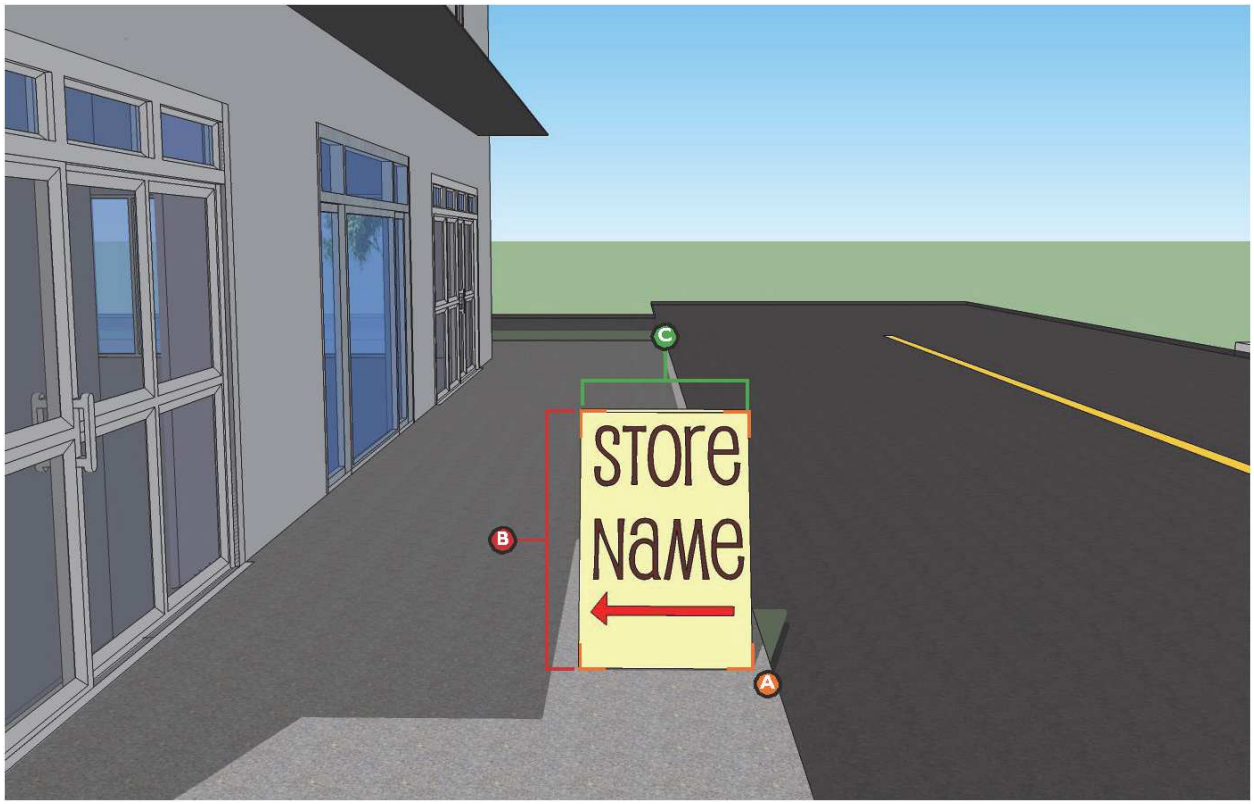
Sign Area (Flat Roof):	No more than ⅓ the total area of the associated roof Ⓐ
Sign Area (Pitched Roof):	No more than ⅓ the total area of the associated roof face
Height:	No more than 25 feet Ⓑ

OTHER RESTRICTIONS
A Roof oriented sign shall include advertising copy for one business only

HARDWARE
Banner
Cabinet
Painted
Plaque
Printed
Programmable
Projected
Stake
Standing
Alternative

ILLUMINATION
Backlighting
External
Individual Bulb
Neon Tube
Alternative

TABLE 2N: SPECIFIC SIGN ORIENTATION TYPE STANDARDS—SIDEWALK*



SIDEWALK

This orientation type includes any portable sign placed on sidewalks or medians and are intended to attract passers-by to a particular business.

SIGN FREQUENCY

One sign with a maximum of two faces per storefront

LOCATION RESTRICTIONS

A minimum area of 5 feet of any City sidewalk with no more than a 2% cross-slope and a 5% running slope shall remain unobstructed for pedestrian access at all times.

A sign may be placed on that portion of the public right-of-way directly abutting the associated storefront exclusively

DIMENSIONAL STANDARDS

Sign Area:	No more than 12 square feet Ⓐ
Height:	No more than 4 feet as measured from the ground Ⓑ
Width:	No more than 4 feet Ⓒ

OTHER STANDARDS

Signs placed on the public right-of-way shall not require a special privilege license or permit if they comply with the criteria described in Title 15

HARDWARE

Banner
Cabinet
Painted
Plaque
Printed
Programmable
Projected
Stake
Standing
Alternative

ILLUMINATION

Backlighting
External
Individual Bulb
Neon Tube
Alternative

PROHIBITED

TABLE 2P: SPECIFIC SIGN ORIENTATION TYPE STANDARDS—SUSPENDED*

SUSPENDED

A sign utilizing this orientation type is suspended above a driveway, entrance, or a pedestrian pathway and is fastened to a building, pole, or other permanent feature on both ends.

SIGN FREQUENCY

One sign with a maximum of two faces per business

LOCATION RESTRICTIONS

Minimum sidewalk clearance of 8 feet / 16 feet over driveways

Shall not obscure more than 20% of the total area of windows of the associated business

DIMENSIONAL STANDARDS

Sign Area:	No more than 48 square feet Ⓐ
Height:	No more than 3 feet Ⓑ
Width:	No more than 2/3 the lineal width of the associated storefront, OR,
	No more than 3/4 the lineal width of the associated storefront when centered above an entrance Ⓒ, OR,

No more than the width of the pavement when centered above a driveway or pedestrian pathway

OTHER RESTRICTIONS

Sign may be suspended above driveway or pedestrian pathway

Signs encroaching into the public right-of-way shall be subject to the special privilege license and permit requirements of Title 15

HARDWARE

Banner
Cabinet
Painted
Plaque
Printed
Programmable
Projected
Stake
Standing
Alternative

ILLUMINATION

Backlighting
External
Individual Bulb
Neon Tube
Alternative

TABLE 2Q: SPECIFIC SIGN ORIENTATION TYPE STANDARDS—WALL*

WALL

This orientation type includes signs that are permanently affixed against a building or other face. Signage affixed to masonry walls, fences or gates, and individual cut letters affixed directly to a building face all utilize the Wall orientation type.

SIGN FREQUENCY

N/A

LOCATION RESTRICTIONS

N/A

DIMENSIONAL STANDARDS

Ground Level Signs

Sign Area:	No more than 48 square feet Ⓐ
Height:	No more than 6 feet, OR, no more than 8 feet when centered above an entrance Ⓑ
Width:	No more than ⅔ the lineal width of the associated storefront, OR,
	No more than ¾ the lineal width of the associated storefront when centered above an entrance Ⓒ

Upper Level Signs

Sign Area:	No more than 10% of the total area of the associated façade.

OTHER RESTRICTIONS

For properties with zero-lot lines, signs that are flush mounted on a façade and that project less than 18 inches, and meet the other standards described herein, are exempt from special privilege license and permit requirements, as per Title 15

HARDWARE

Banner
Cabinet
Painted
Plaque
Printed
Programmable
Projected
Stake
Standing
Alternative

ILLUMINATION

Backlighting
External
Individual Bulb
Neon Tube
Alternative

TABLE 2R: SPECIFIC SIGN ORIENTATION TYPE STANDARDS - WINDOW*

WINDOW

Signs utilizing the Window orientation type consist of copy that is painted onto a window face, or sign hardware that is displayed through the window from inside the storefront.

SIGN FREQUENCY

N/A

LOCATION RESTRICTIONS

Readable text on signs shall be placed 5.5 feet above the ground or higher.

DIMENSIONAL STANDARDS

Ground Level Signs

Sign Area: The sum area of all Window signs shall be less than 25% of the sum surface area of all window faces of the associated storefront Ⓐ

Upper Level Signs

Sign Area: The sum area of all Window signs shall be less than 50% of the sum surface area of all window faces of the associated building face

OTHER RESTRICTIONS

Signs on paper or cardboard are prohibited

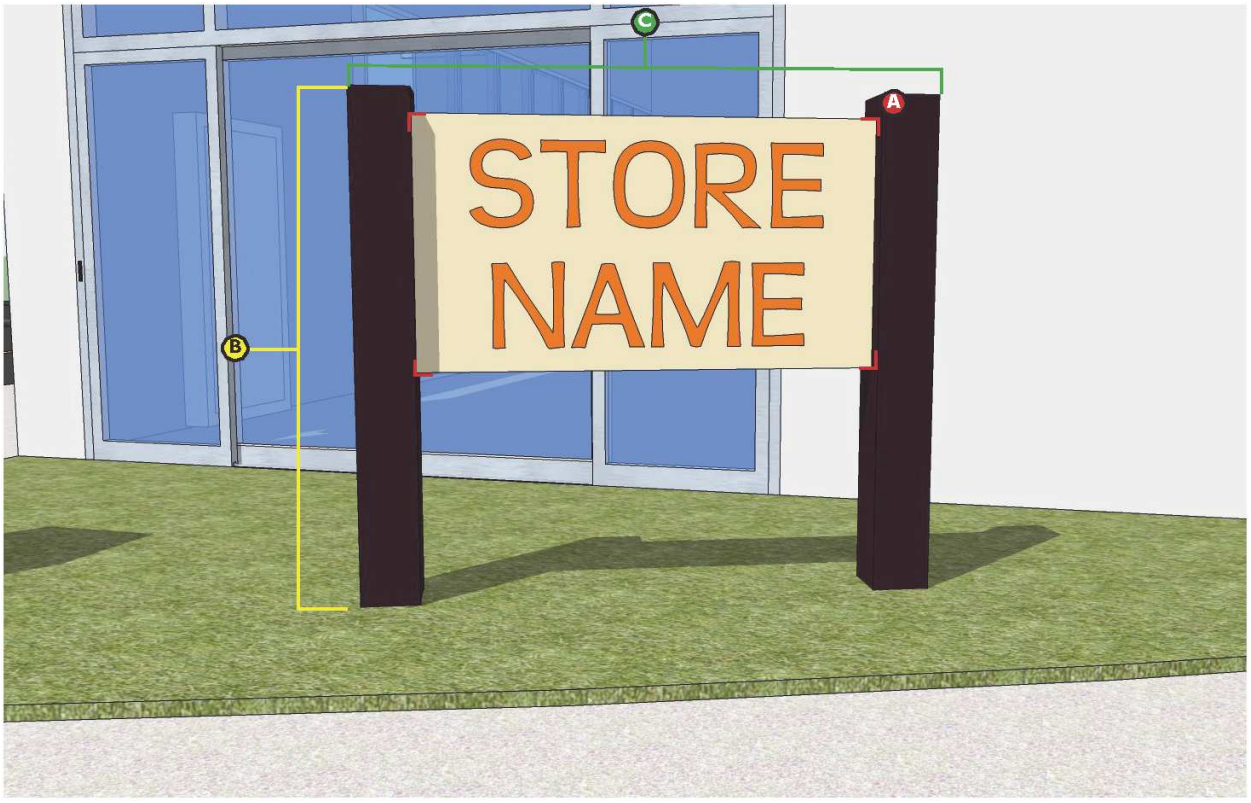
HARDWARE

Banner
Cabinet
Painted
Plaque
Printed
Programmable
Projected
Stake
Standing
Alternative

ILLUMINATION

Backlighting
External
Individual Bulb
Neon Tube
Alternative

TABLE 2S: SPECIFIC SIGN ORIENTATION TYPE STANDARDS—YARD*



YARD

This orientation type applies to freestanding signs that sit in the front yard of a business, typically in a residential type building. The Yard orientation type is distinct from the Monument orientation type in that its copy area is raised off of the ground and supported with posts or poles.

SIGN FREQUENCY

One sign with a maximum of two faces per building

LOCATION RESTRICTIONS

Permitted in the First Layer exclusively

Signs shall not be located within a public right-of-way

Signs shall be mounted parallel or perpendicular to the right-of-way

DIMENSIONAL STANDARDS

Sign Area:	24 square feet maximum Ⓐ
Height:	6 feet maximum Ⓑ
Width:	6 feet maximum Ⓒ

OTHER RESTRICTIONS

The height of any Yard sign shall be measured from the base of the sign's supportive structure at its point of attachment to the ground, to the highest point of the sign structure.

HARDWARE

Banner
Cabinet
Painted
Plaque
Printed
Programmable
Projected
Stake
Standing
Alternative

ILLUMINATION

Backlighting
External
Individual Bulb
Neon Tube
Alternative

(Ord. No. 18505, § 2, 5-17-2016)

21.80.030 Table 3A: Vehicular Lane Dimensions.

This table assigns lane widths to Transect Zones. The Design ADT (Average Daily Traffic) is the determinate for each of these sections. The most typical assemblies are shown in Table 3B. Specific requirements for truck and transit bus routes and truck loading shall be decided in consultation with Sun metro.

DESIGN SPEED	TRAVEL LANE WIDTH	T1	T2	T3	T4	T4O	T5	T5O	T6
20—25 mph	9 feet	■	■	■	■				
25—35 mph	10 feet	■	■	■	■	■		■	■
25—35 mph	11 feet	■	■			■		■	■
Above 35 mph	12 feet	■	■			■		■	■
DESIGN SPEED	**PARKING LANE WIDTH**								
20—25 MPH	(Angle) 18 feet					■		■	■
20—25 mph	(Parallel) 7 feet				■				
25—35 mph	(Parallel) 8 feet			■	■	■		■	■
Above 35 mph	(Parallel) 9 feet					■		■	■
DESIGN SPEED	**EFFECTIVE TURNING RADIUS**								(See Table 17b)
20—25 mph	10—15 feet	■	■	■	■	■		■	■
25—35 mph	15—20 feet	■	■	■	■	■		■	■
Above 35 mph	20—30 feet	■	■						

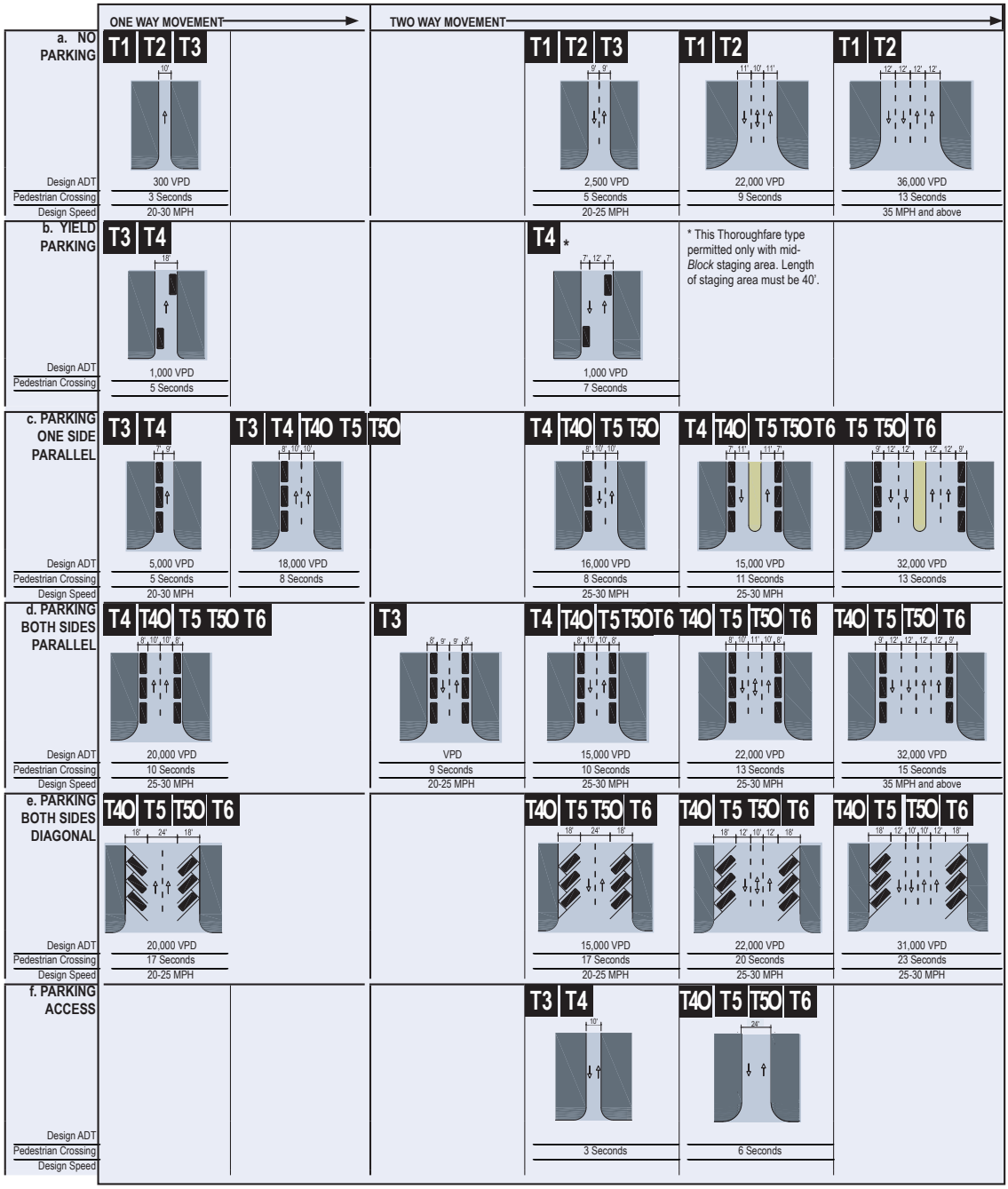
■ BY RIGHT

(Ord. 16945 § 2 (part), 2008)

(Ord. No. 17542, § 38(Exh. B), 4-26-2011; Ord. No. 17787, § 17(Exh. B), 5-15-2012)

21.80.040 Table 3B: Vehicular Lane & Parking Assemblies.

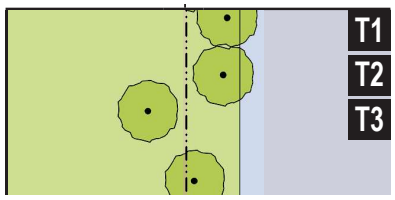
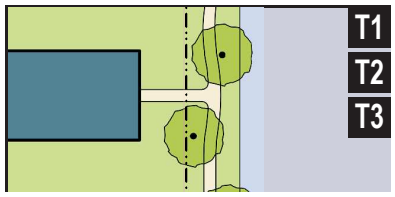
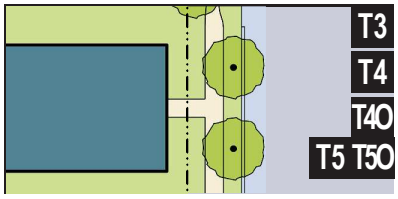
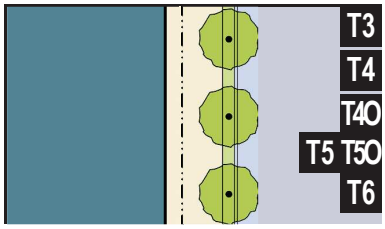
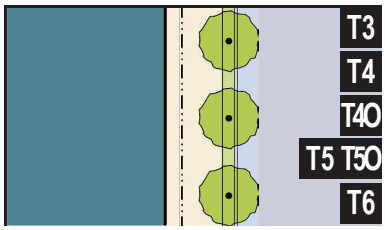
The projected design speeds determine the dimensions of the vehicular lanes and turning radii assembled for Thoroughfares.



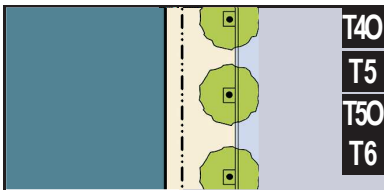
(Ord. 16945 § 2 (part), 2008)
(Ord. No. 17542, § 38(Exh. C), 4-26-2011; Ord. No. 17787, § 17(Exh. C), 5-15-2012)

21.80.050 Table 4A: Public Frontages—General.

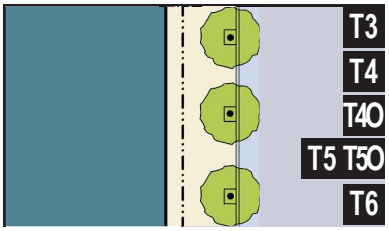
The Public Frontage is the area between the private Lot line and the edge of the vehicular lanes. Dimensions are given in Table 4B.

	PLAN LOT ► ◄ R.O.W. PRIVATE FRONTAGE ► ◄ PUBLIC FRONTAGE
a. (HW) For Highway: This Frontage has open Swales drained by percolation, Bicycle Trails and no parking. The landscaping consists of the natural condition or multiple species arrayed in naturalistic clusters. Buildings are buffered by distance or berms.	
b. (RD) For Road: This Frontage has open Swales drained by percolation and a walking Path or Bicycle Trail along one or both sides and Yield parking. The landscaping consists of multiple species arrayed in naturalistic clusters.	
c. (ST) For Street: This Frontage has raised Curbs drained by inlets and Sidewalks separated from the vehicular lanes by tree wells or continuous Parkways, with parking on one or both sides. The landscaping consists of street trees of a single or alternating species aligned in a regularly spaced Allée.	
d. (DR) For Drive: This Frontage has raised Curbs drained by inlets and a wide Sidewalk or paved Path along one side, related to a Greenway or waterfront. It is separated from the vehicular lanes by individual or continuous Parkways. The landscaping consists of street trees of a single or alternating species aligned in a regularly spaced Allée.	
e. (AV) For Avenue: This Frontage has raised Curbs drained by inlets and wide Sidewalks separated from the vehicular lanes by a narrow continuous Parkway with parking on both sides. The landscaping consists of a single tree species aligned in a regularly spaced Allée.	

f. (CS) (AV) For Commercial Street or Avenue: This Frontage has raised Curbs drained by inlets and very wide Sidewalks along both sides separated from the vehicular lanes by separate tree wells with grates and parking on both sides. The landscaping consists of a single tree species aligned with regular spacing where possible but clears the storefront entrances.



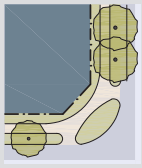
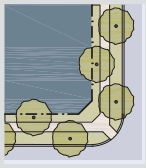
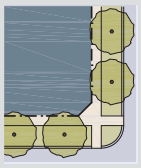
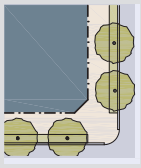
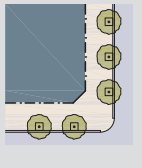
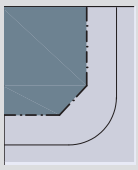
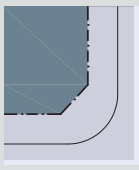
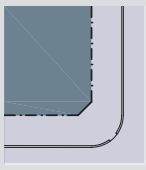
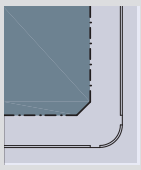
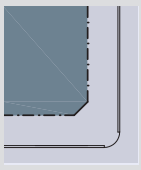
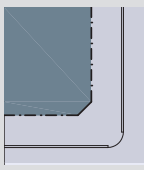
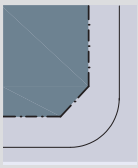
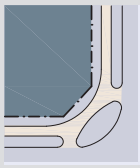
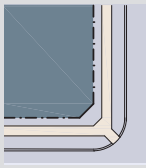
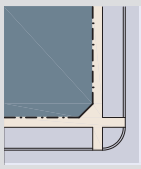
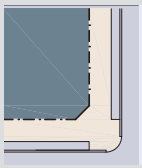
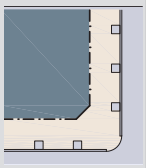
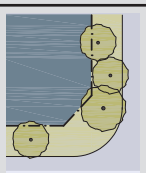
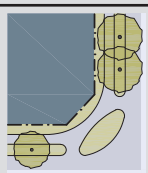
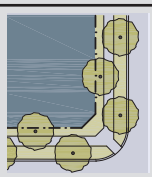
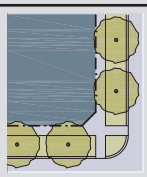
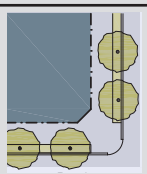
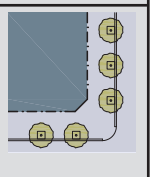
g. (BV) For Boulevard: This Frontage has Slip Roads on both sides. It consists of raised Curbs drained by inlets and Sidewalks along both sides, separated from the vehicular lanes by Parkways. The landscaping consists of double rows of a single tree species aligned in a regularly spaced Allée.



(Ord. 16945 § 2 (part), 2008)
(Ord. No. 17542, § 38(Exh. D), 4-26-2011; Ord. No. 17787, § 17(Exh. D), 5-15-2012)

21.80.060 Table 4B: Public Frontages - Specific.

This table assembles prescriptions and dimensions for Public Frontage elements - Curbs, walkways and planters - relative to specific Thoroughfare types within Transect Zones. Table 4B-a assembles all of the elements for the various street types. Other street cross-sections may be approved under an alternative design as approved by city manager or designee and CRC prior to approval of the Regulating Plan by City Council.

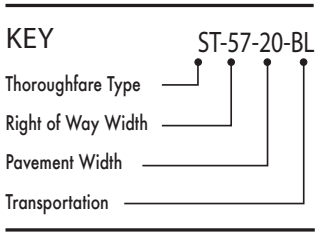
	R U R A L I I I I I I I I I I I I I I I I T R A N S E C T I I I I I I I I I I I I I I I I U R B A N					
TRANSECT ZONE **Public Frontage Type**	T1 T2 T3	T1 T2 T3	T3 T4	T4 T4O T5 T5O	T4O T5 T5O T6	T4O T5 T5O T6
	HW & RD	**RD & ST**	**ST-DR-AV**	**ST-DR-AV-BV**	**CS-DR-AR-BV**	**CS-DR-AV-BV**
a. Assembly: The principal variables are the type and dimension of Curbs, walkways, planters and landscape.						
Total Width	16—24 feet	12—24 feet	12—18 feet	12—18 feet	18—24 feet	18—30 feet
b. Curb: The detailing of the edge of the vehicular pavement, incorporating drainage.						
Type **Radius**	Open Swale 10—30 feet	Open Swale 10—30 feet	Raised Curb 5—20 feet	Raised Curb 5—20 feet	Raised Curb 5—20 feet	Raised Curb 5—20 feet
c. Walkway: The pavement dedicated exclusively to pedestrian activity.						
Type **Width**	Path Optional n/a	Path 4—8 feet	Sidewalk 4—8 feet	Sidewalk 4—8 feet	Sidewalk 12—20 feet	Sidewalk 12—30 feet
d. Parkway: The Layer which accommodates street trees and other landscape.						
Arrangement **Species** **Parkway Type** **Parkway Width**	Clustered Multiple Continuous Swale 8 feet—16 feet	Clustered Multiple Continuous Swale 8 feet—16 feet	Regular Alternating Continuous Parkway 8 feet—12 feet	Regular Single Continuous Parkway 8 feet—12 feet	Regular Single Continuous Parkway 4 feet—6 feet	Opportunistic Single Tree Well 4 feet—6 feet

	RURAL TRANSECT URBAN		
e. Landscape: The recommended plant species. (See Table 6)			
f. Lighting: The recommended Public Lighting. (See Table 5)			

(Ord. 16945 § 2 (part), 2008)
(Ord. No. 17542, § 38(Exh. E), 4-26-2011; Ord. No. 17787, § 17(Exh. E), 5-15-2012)

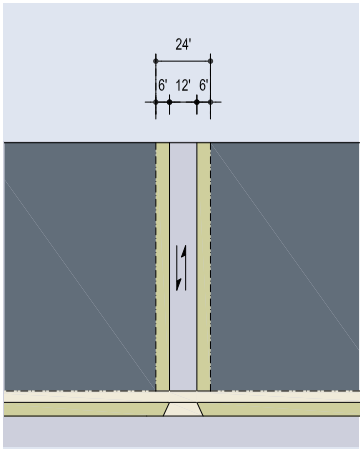
21.80.070 Table 4C: Thoroughfare Assemblies.

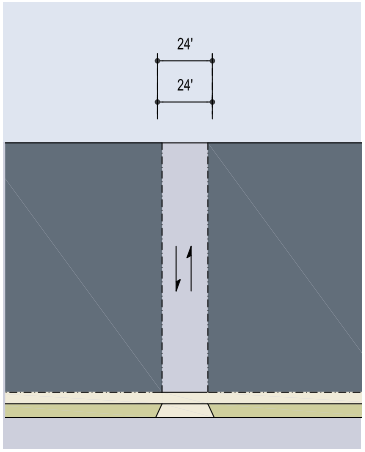
These Thoroughfares are assembled from the elements that appear in Tables 3A and 3B and incorporate the Public Frontages of Table 4. The key gives the Thoroughfare type followed by the right-of-way width, followed by the pavement width, and in some instances followed by specialized transportation capability.



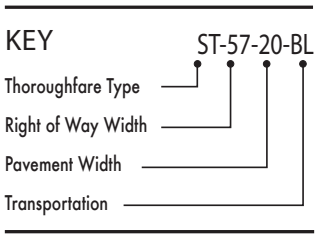
THOROUGHFARE TYPES

Highway:	HW
Boulevard:	BV
Avenue:	AV
Commercial Street:	CS
Drive:	DR
Street:	ST
Road:	RD
Rear Alley:	RA
Rear Lane:	RL
Bicycle Trail:	BT
Bicycle Lane:	BL
Bicycle Route:	BR
Path:	PT
Transit Route:	TR



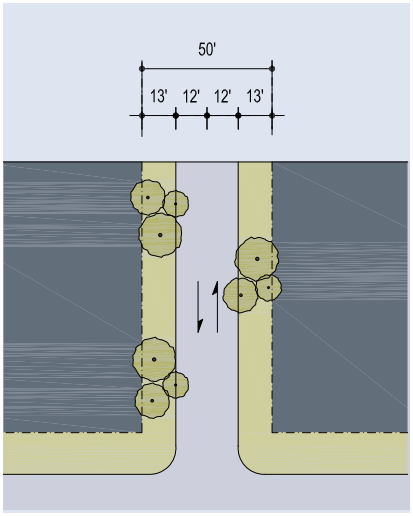


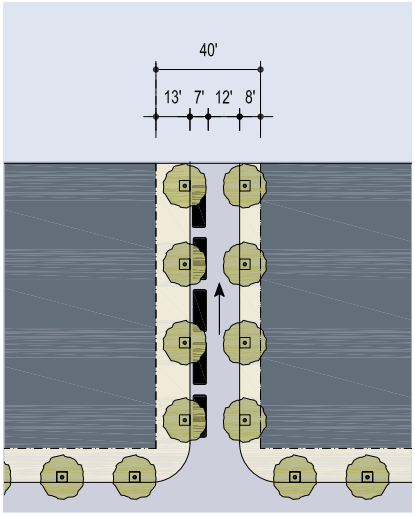
	RL-24-12	RA-24-24
Thoroughfare Type	Rear Lane	Rear Alley
Transect Zone Assignment	T3, T4, T4O	T4, T4O, T5, T5O, T6
Right-of-Way Width	24 feet	24 feet
Pavement Width	12 feet	24 feet
Movement	Yield Movement	Slow Movement
Design Speed	10 MPH	10 MPH
Pedestrian Crossing Time	3.5 seconds	7 seconds
Traffic Lanes	n/a	n/a
Parking Lanes	None	None
Curb Radius	Taper	Taper
Public Frontage Type	None	None
Walkway Type	None	None
Planter Type	Inverted Crown	Inverted Crown
Curb Type	None	None
Landscape Type	None	None
Transportation Provision		



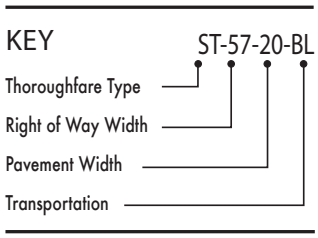
THOROUGHFARE TYPES

Highway:	HW
Boulevard:	BV
Avenue:	AV
Commercial Street:	CS
Drive:	DR
Street:	ST
Road:	RD
Rear Alley:	RA
Rear Lane:	RL
Bicycle Trail:	BT
Bicycle Lane:	BL
Bicycle Route:	BR
Path:	PT
Transit Route:	TR



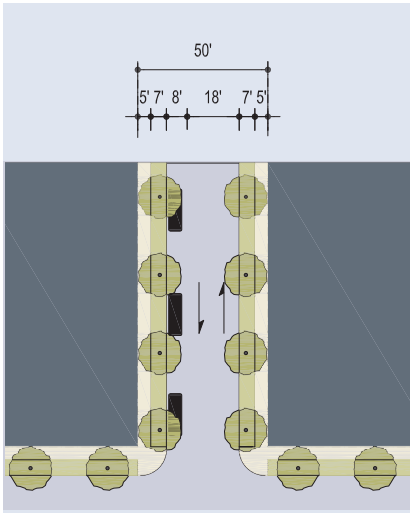


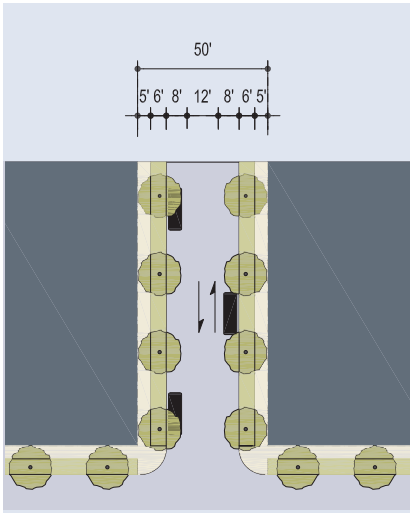
	RD-50-14	ST-40-19
Thoroughfare Type	Road	Street
Transect Zone Assignment	T1, T2, T3	T4O, T5, T5O, T6
Right-of-Way Width	50 feet	40 feet
Pavement Width	24 feet	19 feet
Movement	Slow Movement	One-Way Movement
Design Speed	20 MPH	20 MPH
Pedestrian Crossing Time	6.8 seconds	5.4 seconds
Traffic Lanes	2 lanes	1 lane
Parking Lanes	None	One side @ 7 feet marked
Curb Radius	25 feet	15 feet
Public Frontage Type	Common Yard, Porch and Fence	Shopfront, Gallery, Arcade
Walkway Type	Path optional	13/8 foot Sidewalk
Planter Type	Continuous swale	4×4" tree well
Curb Type	Swale	Curb
Landscape Type	Trees clustered	Trees at 30' o.c. Avg.
Transportation Provision	BT	



THOROUGHFARE TYPES

Highway:	HW
Boulevard:	BV
Avenue:	AV
Commercial Street:	CS
Drive:	DR
Street:	ST
Road:	RD
Rear Alley:	RA
Rear Lane:	RL
Bicycle Trail:	BT
Bicycle Lane:	BL
Bicycle Route:	BR
Path:	PT
Transit Route:	TR





	RD-50-26*	ST-50-28*
Thoroughfare Type	Street	Street
Transect Zone Assignment	T4, T4O, T5, T5O, T6	T4, T4O, T5, T5O, T6
Right-of-Way Width	50 feet	50 feet
Pavement Width	26 feet	28 feet
Movement	Free Movement	Yield Movement
Design Speed	20 MPH	20 MPH
Pedestrian Crossing Time	7.4 seconds	7.6 seconds
Traffic Lanes	2 lanes	2 lanes
Parking Lanes	One side @ 8 feet marked	Both sides @ 8 feet unmarked
Curb Radius	10 feet	10 feet
Public Frontage Type	PF, T/L, ST	PF, T/L, ST
Walkway Type	5 foot Sidewalk	5 foot Sidewalk
Planter Type	7 foot continuous Parkway	6 foot continuous Parkway
Curb Type	Curb	Curb
Landscape Type	Trees at 30' o.c. Avg.	Trees at 30' o.c. Avg.
Transportation Provision		

*PERMITTED IN T4 WITH 40' MID-BLOCK STAGING AREA.

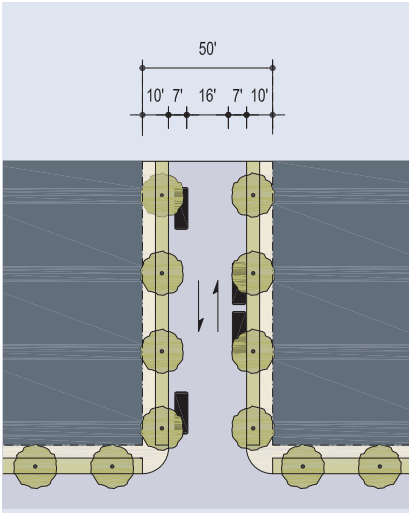
*PERMITTED IN T4 WITH 40' MID-BLOCK STAGING AREA.

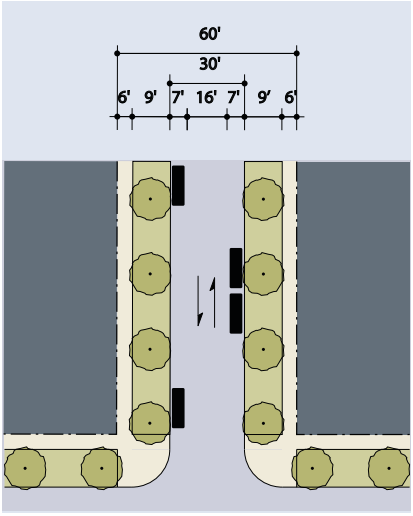
KEY ST-57-20-BL

- Thoroughfare Type
- Right of Way Width
- Pavement Width
- Transportation

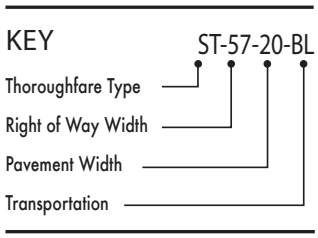
THOROUGHFARE TYPES

Highway:	HW
Boulevard:	BV
Avenue:	AV
Commercial Street:	CS
Drive:	DR
Street:	ST
Road:	RD
Rear Alley:	RA
Rear Lane:	RL
Bicycle Trail:	BT
Bicycle Lane:	BL
Bicycle Route:	BR
Path:	PT
Transit Route:	TR



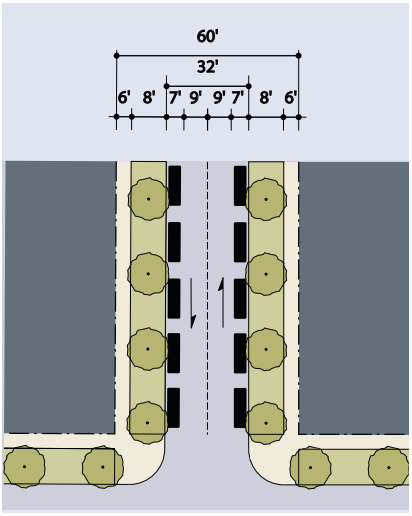


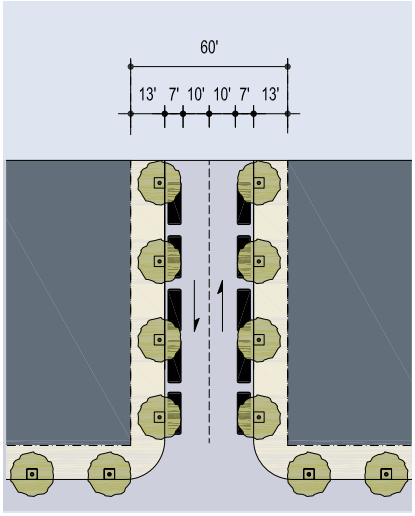
	ST-50-30	ST-60-30
Thoroughfare Type	Street	Street
Transect Zone Assignment	T3, T4	T3, T4
Right-of-Way Width	50 feet	60 feet
Pavement Width	30 feet	30 feet
Movement	Slow Movement	Slow Movement
Design Speed	20 MPH	20 MPH
Pedestrian Crossing Time	8.5 seconds	8.5 seconds
Traffic Lanes	2 lanes	2 lanes
Parking Lanes	Both sides @ 7 feet unmarked	Both sides @ 7 feet unmarked
Curb Radius	10 feet	10 feet
Public Frontage Type	ST, FC, DY/LC, PF	ST, FC, DY/LC, PF
Walkway Type	5 foot Sidewalk	5 foot Sidewalk
Planter Type	5 foot Continuous Parkway	9 foot Continuous Parkway
Curb Type	Vertical	Vertical
Landscape Type	Trees at 30' o.c. Avg.	Trees at 30' o.c. Avg.
Transportation Provision	BR	BR



THOROUGHFARE TYPES

Highway:	HW
Boulevard:	BV
Avenue:	AV
Commercial Street:	CS
Drive:	DR
Street:	ST
Road:	RD
Rear Alley:	RA
Rear Lane:	RL
Bicycle Trail:	BT
Bicycle Lane:	BL
Bicycle Route:	BR
Path:	PT
Transit Route:	TR





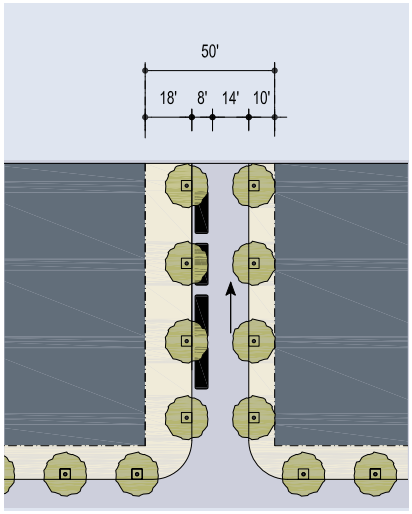
	ST-60-32	ST-60-34
Thoroughfare Type	Street	Street
Transect Zone Assignment	T4	T4, T4O, T5, T5O
Right-of-Way Width	60 feet	60 feet
Pavement Width	30 feet	34 feet
Movement	Slow Movement	Slow Movement
Design Speed	20 MPH	20 MPH
Pedestrian Crossing Time	9.7 seconds	9.7 seconds
Traffic Lanes	2 lanes	2 lanes
Parking Lanes	Both sides @ 7 feet unmarked	Both Sides @ 7 feet marked
Curb Radius	10 feet	15 feet
Public Frontage Type	ST, FC, DY/LC, PF	Arcade, Gallery, Shopfront, Stoop
Walkway Type	6 foot Sidewalk	6 foot Sidewalk
Planter Type	8 foot continuous Parkway	7 foot continuous Parkway
Curb Type	Vertical	Curb
Landscape Type	Trees at 30' o.c. Avg.	Trees at 30' o.c. Avg.
Transportation Provision	BR	BR

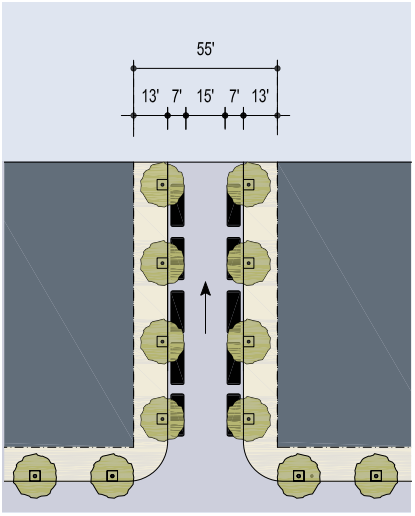
KEY ST-57-20-BL

- Thoroughfare Type
- Right of Way Width
- Pavement Width
- Transportation

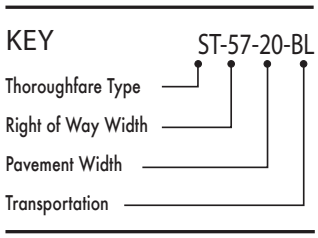
THOROUGHFARE TYPES

Highway:	HW
Boulevard:	BV
Avenue:	AV
Commercial Street:	CS
Drive:	DR
Street:	ST
Road:	RD
Rear Alley:	RA
Rear Lane:	RL
Bicycle Trail:	BT
Bicycle Lane:	BL
Bicycle Route:	BR
Path:	PT
Transit Route:	TR



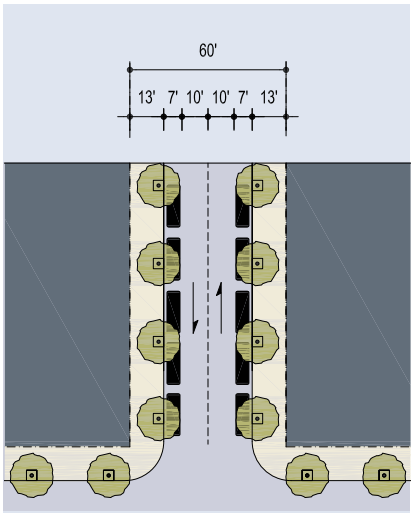


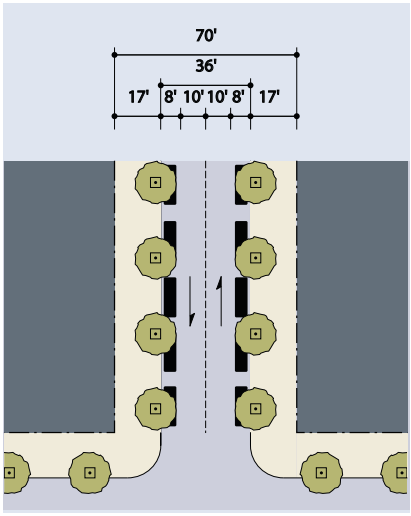
	CS-50-22	CS-55-29
Thoroughfare Type	Commercial Street	Commercial Street
Transect Zone Assignment	T5, T5O, T6	T5, T5O, T6
Right-of-Way Width	50 feet	55 feet
Pavement Width	22 feet	29 feet
Movement	Slow Movement	Slow Movement
Design Speed	20 MPH	20 MPH
Pedestrian Crossing Time	6.2 seconds	8.2 seconds
Traffic Lanes	1 lane	1 lane
Parking Lanes	One Side @ 8 feet marked	Both sides @ 7 feet marked
Curb Radius	15 feet	15 feet
Public Frontage Type	Arcade, Gallery, Shopfront	Arcade, Gallery, Shopfront
Walkway Type	18/10 foot Sidewalk	13 foot Sidewalk
Planter Type	4×4" tree well	4×4" tree well
Curb Type	Curb	Curb
Landscape Type	Trees at 30' o.c. Avg.	Trees at 30' o.c. Avg.
Transportation Provision	TR, SH	TR, SH



THOROUGHFARE TYPES

Highway:	HW
Boulevard:	BV
Avenue:	AV
Commercial Street:	CS
Drive:	DR
Street:	ST
Road:	RD
Rear Alley:	RA
Rear Lane:	RL
Bicycle Trail:	BT
Bicycle Lane:	BL
Bicycle Route:	BR
Path:	PT
Transit Route:	TR





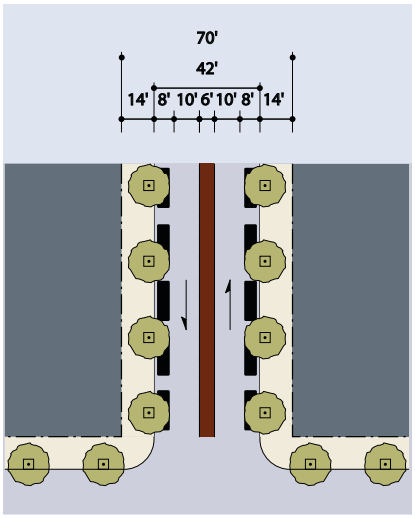
	CS-60-34	CS-70-36
Thoroughfare Type	Commercial Street	Commercial Street
Transect Zone Assignment	T4O, T5, T5O, T6	T4O, T5, T5O, T6
Right-of-Way Width	60 feet	70 feet
Pavement Width	34 feet	36 feet
Movement	Slow Movement	Slow Movement
Design Speed	20 MPH	25 MPH
Pedestrian Crossing Time	9.7 seconds	10 seconds
Traffic Lanes	2 lanes	2 lanes
Parking Lanes	Both Sides @ 7 feet marked	Both Sides @ 8 feet marked
Curb Radius	10 feet	10 feet
Public Frontage Type	Arcade, Gallery, Shopfront	Arcade, Gallery, Shopfront/
Walkway Type	13 foot Sidewalk	17 foot Sidewalk
Planter Type	4'×4' tree well	9'×9' tree well
Curb Type	Vertical	Vertical
Landscape Type	Trees at 30' o.c. Avg.	Trees at 30' o.c. Avg.
Transportation Provision	BR, SH, TR	BR, SH, TR

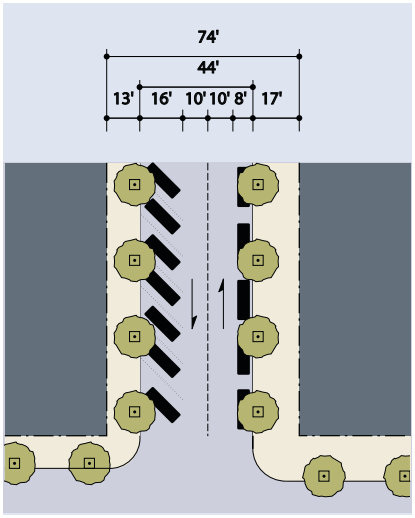
KEY ST-57-20-BL

- Thoroughfare Type
- Right of Way Width
- Pavement Width
- Transportation

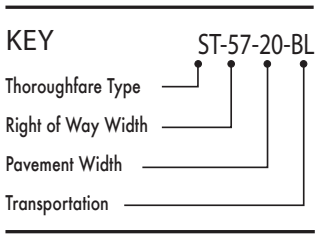
THOROUGHFARE TYPES

Highway:	HW
Boulevard:	BV
Avenue:	AV
Commercial Street:	CS
Drive:	DR
Street:	ST
Road:	RD
Rear Alley:	RA
Rear Lane:	RL
Bicycle Trail:	BT
Bicycle Lane:	BL
Bicycle Route:	BR
Path:	PT
Transit Route:	TR



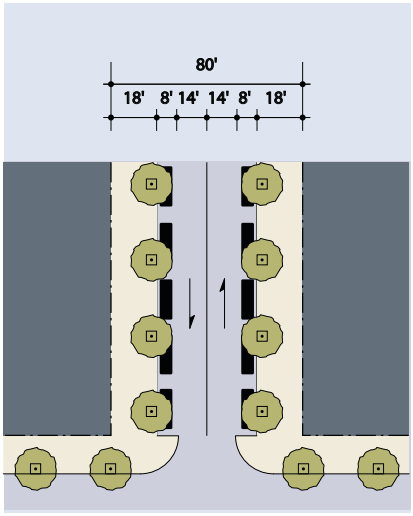


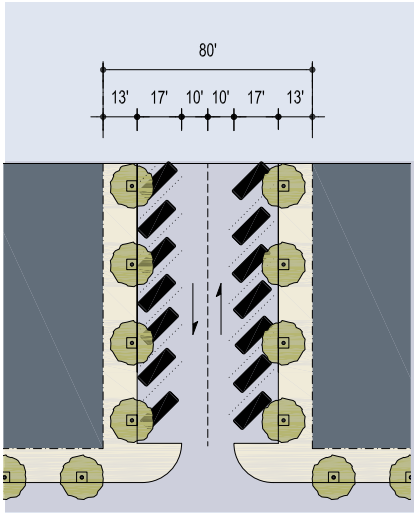
	CS-70-42	CS-74-44
Thoroughfare Type	Commercial Street w/center safety strip	Commercial Street
Transect Zone Assignment	T6	T4O, T5, T5O, T6
Right-of-Way Width	70 feet	74 feet
Pavement Width	42 feet	44 feet
Movement	Slow Movement	Slow Movement
Design Speed	25 MPH	25 MPH
Pedestrian Crossing Time	12.2 seconds	12.2 seconds
Traffic Lanes	2 lanes	2 lanes
Parking Lanes	Both sides @ 8 feet marked	Reverse angle @ 16 feet, parallel @ 8 feet marked
Curb Radius	10 feet	10 feet
Public Frontage Type	Arcade, Gallery, Shopfront	Arcade, Gallery, Shopfront
Walkway Type	14 foot Sidewalk	13 foot Sidewalk/17 foot Sidewalk
Planter Type	9'×9' tree well	9'×9' tree well
Curb Type	Vertical; center flush median w/ribbon curb	Vertical
Landscape Type	Trees at 30' o.c. Avg.	Trees at 30' o.c. Avg.
Transportation Provision	BR, SH, TR	BR, SH, TR



THOROUGHFARE TYPES

Highway:	HW
Boulevard:	BV
Avenue:	AV
Commercial Street:	CS
Drive:	DR
Street:	ST
Road:	RD
Rear Alley:	RA
Rear Lane:	RL
Bicycle Trail:	BT
Bicycle Lane:	BL
Bicycle Route:	BR
Path:	PT
Transit Route:	TR





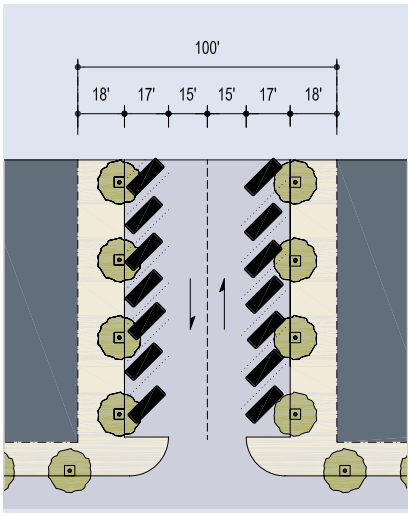
	CS-80-44	CS-80-54
Thoroughfare Type	Commercial Street	Commercial Street
Transect Zone Assignment	T5, T5O, T6	T4O, T5, T5O, T6
Right-of-Way Width	80 feet	80 feet
Pavement Width	44 feet	54 feet
Movement	Slow Movement	Slow Movement
Design Speed	25 MPH	25 MPH
Pedestrian Crossing Time	8 seconds at corners	5.7 seconds at corners
Traffic Lanes	2 lanes	2 lanes
Parking Lanes	Both sides @ 8 feet marked	Both sides angled @ 17 feet marked
Curb Radius	10 feet	10 feet
Public Frontage Type	Arcade, Gallery, Shopfront	Shopfront, Gallery, Arcade
Walkway Type	18 foot Sidewalk	13 foot Sidewalk
Planter Type	4'×4' tree well	4'×4' tree well
Curb Type	Vertical	Curb
Landscape Type	Trees at 30' o.c. Avg.	Trees at 30' o.c. Avg.
Transportation Provision		BR, TR

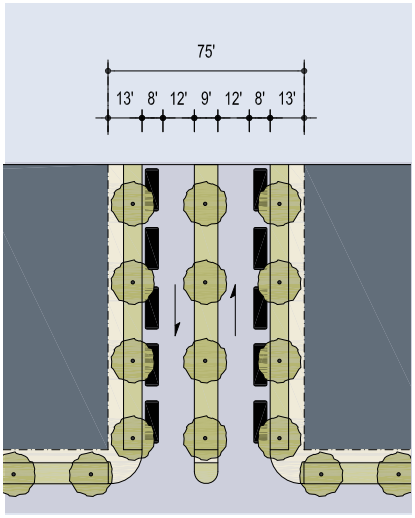
KEY ST-57-20-BL

- Thoroughfare Type
- Right of Way Width
- Pavement Width
- Transportation

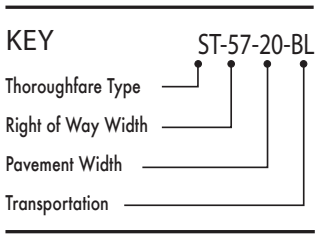
THOROUGHFARE TYPES

Highway:	HW
Boulevard:	BV
Avenue:	AV
Commercial Street:	CS
Drive:	DR
Street:	ST
Road:	RD
Rear Alley:	RA
Rear Lane:	RL
Bicycle Trail:	BT
Bicycle Lane:	BL
Bicycle Route:	BR
Path:	PT
Transit Route:	TR



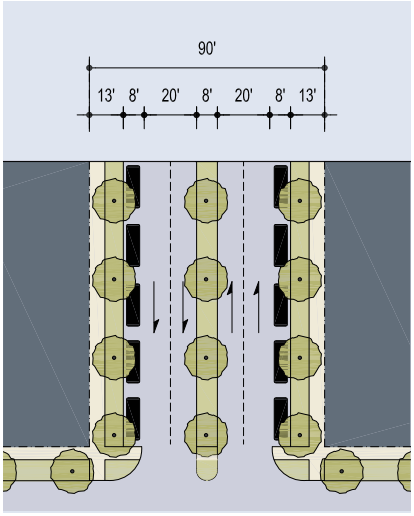


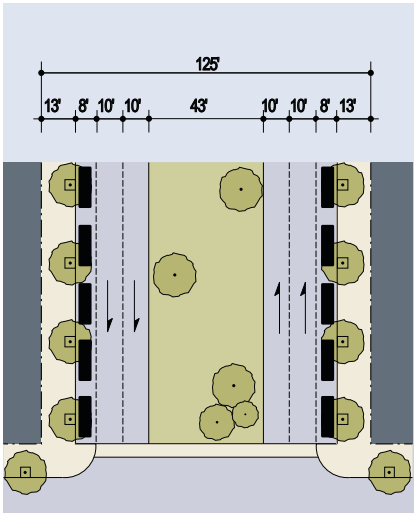
	CS-100-64	AV-75-40
Thoroughfare Type	Commercial Street	Avenue
Transect Zone Assignment	T4O, T5, T5O, T6	T3, T4, T4O, T5, T5O
Right-of-Way Width	100 feet	75 feet
Pavement Width	64 feet	40 feet total
Movement	Slow Movement	Slow Movement
Design Speed	25 MPH	25 MPH
Pedestrian Crossing Time	8.5 seconds at corners	5.7 seconds - 5.7 seconds
Traffic Lanes	2 lanes	2 lanes
Parking Lanes	Both sides angled @ 17 feet marked	Both sides @ 8 feet marked
Curb Radius	10 feet	10 feet
Public Frontage Type	Shopfront, Gallery, Arcade	PF, T/LW, FC, ST, SH
Walkway Type	18 foot Sidewalk	6 foot Sidewalk
Planter Type	4'×4' tree well	7 foot continuous Parkway
Curb Type	Curb	Curb or Swale
Landscape Type	Trees at 30' o.c. Avg.	Trees at 30' o.c. Avg.
Transportation Provision	BR, SH, TR	BR, TR



THOROUGHFARE TYPES

Highway:	HW
Boulevard:	BV
Avenue:	AV
Commercial Street:	CS
Drive:	DR
Street:	ST
Road:	RD
Rear Alley:	RA
Rear Lane:	RL
Bicycle Trail:	BT
Bicycle Lane:	BL
Bicycle Route:	BR
Path:	PT
Transit Route:	TR





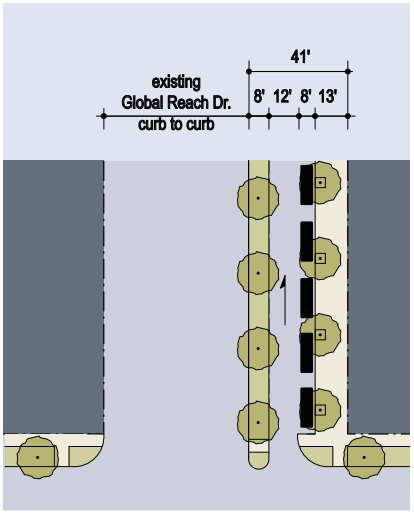
	AV-90-56	GA-125-56
Thoroughfare Type	Avenue	Grand Avenue
Transect Zone Assignment	T3, T4, T4O, T5, T5O	T5, T5O, T6
Right-of-Way Width	90 feet	125 feet
Pavement Width	56 feet total	28 feet - 28 feet
Movement	Slow Movement	Free Movement
Design Speed	25 MPH	35 MPH
Pedestrian Crossing Time	5.7 seconds - 5.7 seconds at corners	
Traffic Lanes	4 lanes	4 one-way lanes
Parking Lanes	Both sides @ 8 feet marked	Both sides @ 8 feet marked
Curb Radius	10 feet	10 feet
Public Frontage Type	PF, T/LW, FC, ST, SH	
Walkway Type	6 foot Sidewalk	13 foot Sidewalk
Planter Type	7 foot continuous Parkway	4'×4' tree well
Curb Type	Curb or Swale	Curb
Landscape Type	Trees at 30' o.c. Avg.	Trees at 30' o.c. Avg.
Transportation Provision	BR, TR	BR, TR

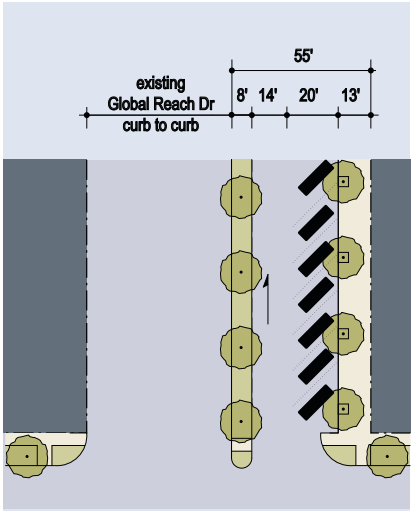
KEY ST-57-20-BL

- Thoroughfare Type
- Right of Way Width
- Pavement Width
- Transportation

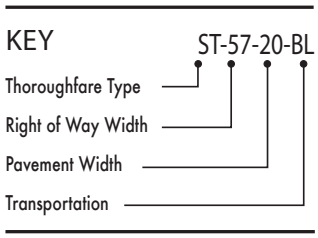
THOROUGHFARE TYPES

Highway:	HW
Boulevard:	BV
Avenue:	AV
Commercial Street:	CS
Drive:	DR
Street:	ST
Road:	RD
Rear Alley:	RA
Rear Lane:	RL
Bicycle Trail:	BT
Bicycle Lane:	BL
Bicycle Route:	BR
Path:	PT
Transit Route:	TR



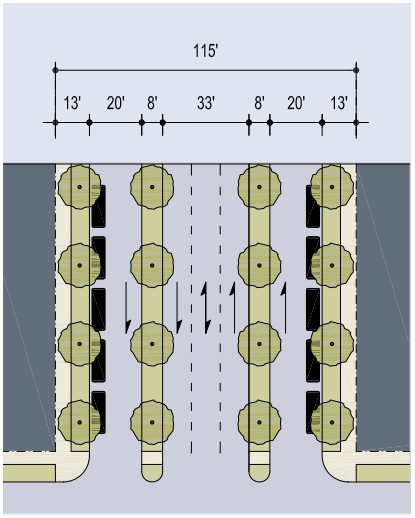


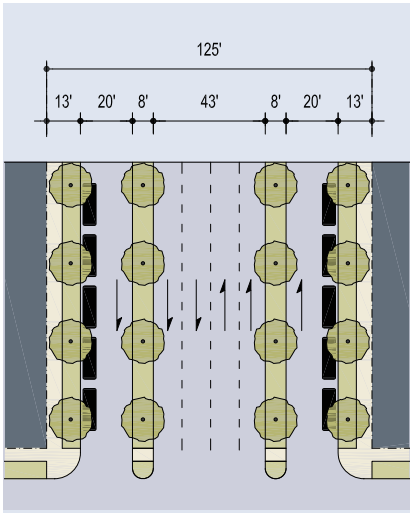
	SL-41-20	SL-55-34
Thoroughfare Type	Slip Lane	Slip Lane
Transect Zone Assignment	T4, T5	T4, T5
Right-of-Way Width	41 feet	55 feet
Pavement Width	20 feet	34 feet
Movement	Slow Movement	Slow Movement
Design Speed	20 MPH	20 MPH
Pedestrian Crossing Time	6 seconds	7 seconds
Traffic Lanes	1 one-way lane	1 one-way lane
Parking Lanes	One side @ 8 feet marked	One side diagonal @ 20 feet marked
Curb Radius	10 feet	10 feet
Public Frontage Type		
Walkway Type	13 foot Sidewalk	13 foot Sidewalk
Planter Type	4×4' tree well	4×4' tree well
Curb Type	Curb	Curb
Landscape Type	Trees at 30' o.c. Avg.	Trees at 30' o.c. Avg.
Transportation Provision	BR	BR



THOROUGHFARE TYPES

Highway:	HW
Boulevard:	BV
Avenue:	AV
Commercial Street:	CS
Drive:	DR
Street:	ST
Road:	RD
Rear Alley:	RA
Rear Lane:	RL
Bicycle Trail:	BT
Bicycle Lane:	BL
Bicycle Route:	BR
Path:	PT
Transit Route:	TR





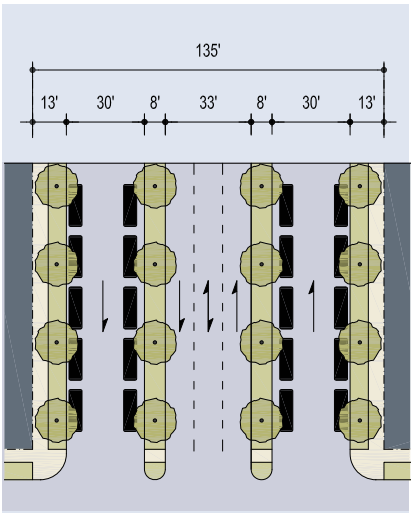
	BV-115-33	BV-125-43
Thoroughfare Type	Boulevard	Boulevard
Transect Zone Assignment	T4O, T5, T5O, T6	T4O, T5, T5O, T6
Right-of-Way Width	115 feet	125 feet
Pavement Width	20 feet - 33 feet - 20 feet	20 feet - 43 feet - 20 feet
Movement	Free Movement (inner lanes)	Free Movement (inner lanes)
Design Speed	35 MPH	35 MPH
Pedestrian Crossing Time	5.7 seconds - 9.4 seconds - 5.7 seconds	5.7 seconds - 12.2 seconds - 5.7 seconds
Traffic Lanes	3 lanes, one turning lane & two one-way slip roads	4 lanes & two one-way slip roads
Parking Lanes	8 feet	8 feet
Curb Radius	10 feet	10 feet
Public Frontage Type	Forecourt, Shopfront, Gallery, Arcade	Forecourt, Shopfront, Gallery, Arcade
Walkway Type	6 foot Sidewalk	6 foot Sidewalk
Planter Type	7 foot continuous Parkway	7 foot continuous Parkway
Curb Type	Curb	Curb
Landscape Type	Trees at 30' o.c. Avg.	Trees at 30' o.c. Avg.
Transportation Provision	BR, TR	BR, TR

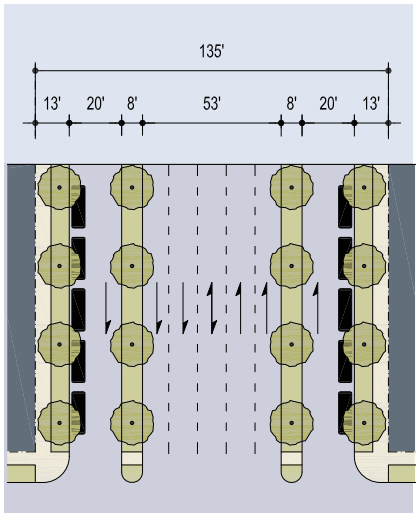
KEY ST-57-20-BL

- Thoroughfare Type
- Right of Way Width
- Pavement Width
- Transportation

THOROUGHFARE TYPES

Highway:	HW
Boulevard:	BV
Avenue:	AV
Commercial Street:	CS
Drive:	DR
Street:	ST
Road:	RD
Rear Alley:	RA
Rear Lane:	RL
Bicycle Trail:	BT
Bicycle Lane:	BL
Bicycle Route:	BR
Path:	PT
Transit Route:	TR





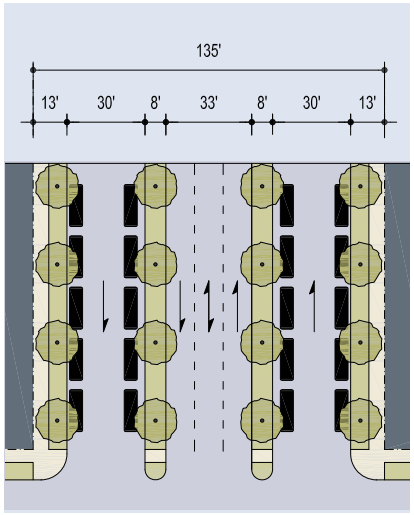
	BV-135-33	BV-135-53
Thoroughfare Type	Boulevard	Boulevard
Transect Zone Assignment	T4O, T5, T5O, T6	T4O, T5, T5O, T6
Right-of-Way Width	135 feet	135 feet
Pavement Width	30 feet - 33 feet - 30 feet	20 feet - 53 feet - 20 feet
Movement	Free Movement	Free Movement
Design Speed	35 MPH	35 MPH
Pedestrian Crossing Time	8.5 seconds - 9.4 seconds - 8.5 seconds	5.7 seconds - 15.1 seconds - 5.7 seconds
Traffic Lanes	3 lanes, one turning lane & two one-way slip roads	5 lanes, one turning lane & two one-way slip roads
Parking Lanes	8 feet	8 feet
Curb Radius	10 feet	10 feet
Public Frontage Type	Forecourt, Shopfront, Gallery, Arcade	Forecourt, Shopfront, Gallery, Arcade
Walkway Type	6 foot Sidewalk	6 foot Sidewalk
Planter Type	7 foot continuous Parkway	7 foot continuous Parkway
Curb Type	Vertical	Vertical
Landscape Type	Trees at 30' o.c. Avg.	Trees at 30' o.c. Avg.
Transportation Provision	BR, TR	BR, TR

KEY ST-57-20-BL

- Thoroughfare Type
- Right of Way Width
- Pavement Width
- Transportation

THOROUGHFARE TYPES

Highway:	HW
Boulevard:	BV
Avenue:	AV
Commercial Street:	CS
Drive:	DR
Street:	ST
Road:	RD
Rear Alley:	RA
Rear Lane:	RL
Bicycle Trail:	BT
Bicycle Lane:	BL
Bicycle Route:	BR
Path:	PT
Transit Route:	TR



	BSI-60-36
Thoroughfare Type	B-Street Industrial
Transect Zone Assignment	SD
Right-of-Way Width	60 feet
Pavement Width	36 feet
Movement	Slow Movement
Design Speed	25 MPH
Pedestrian Crossing Time	
Traffic Lanes	2 lanes
Parking Lanes	One side @ 8 feet marked
Curb Radius	15 feet
Public Frontage Type	
Walkway Type	5 foot Sidewalk
Planter Type	7 foot continuous Parkway
Curb Type	Vertical
Landscape Type	Trees at 30' o.c. Avg.
Transportation Provision	

(Ord. 16945 § 2 (part), 2008)
(Ord. No. 17378, § 3(Exh. A), 8-24-2010; Ord. No. 17542, § 38(Exh. F), 4-26-2011; Ord. No. 17787, § 17(Exh. F), 5-15-2012)

21.80.080 Table 5: Public Lighting.

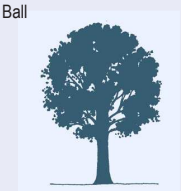
Lighting varies in brightness and also in the character of the fixture according to the Transect. The table shows five common types. A listed set of streetlights corresponding to these types would be approved by the utility company and listed on the page.

	T1	T2	T3	T4	T4O	T5	T5O	T6	SD	Specifications
Cobra Head	■								■	
Pipe	■	■	■							
Post		■	■	■						
Column			■	■	■	■	■			
Double Column					■	■	■	■		

(Ord. 16945 § 2 (part), 2008)
(Ord. No. 17542, § 38(Exh. G), 4-26-2011; Ord. No. 17787, § 17(Exh. G), 5-15-2012)

21.80.090 Table 6: Public Planting

This table shows six common types of street tree shapes and their appropriateness within the Transect Zones. The local planning office selects species appropriate for the bioregion.

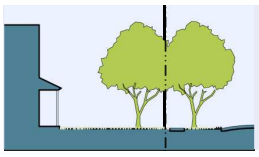
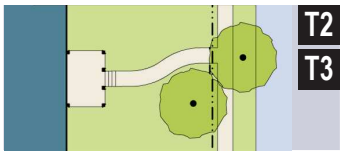
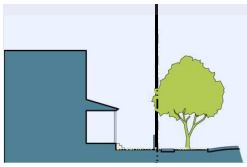
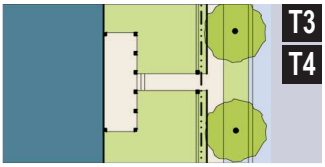
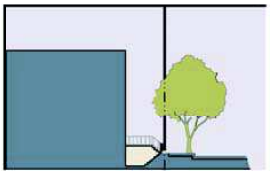
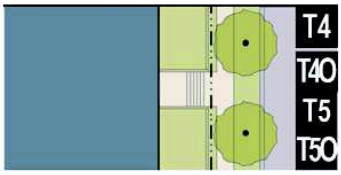
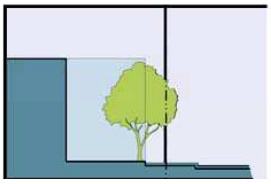
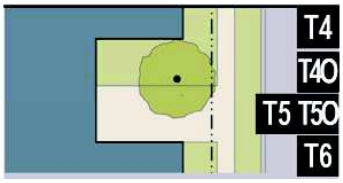
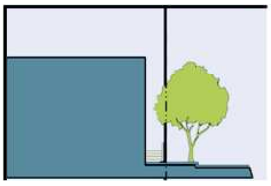
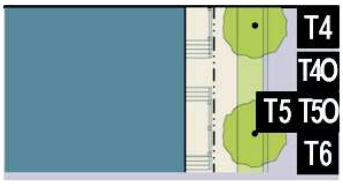
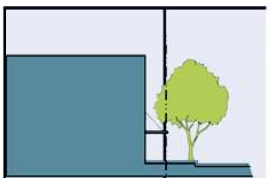
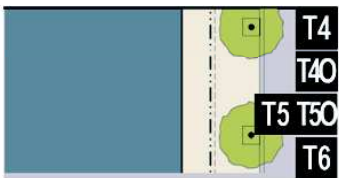
	T1	T2	T3	T4	T4O	T5	T5O	T6	SD	Specifications
Pole	■	■	■	■	■	■	■	■		
Oval	■	■	■	■	■	■	■	■		
Ball 	■	■	■	■	■	■	■	■		
Pyramid	■	■	■	■						
Umbrella	■	■	■	■						

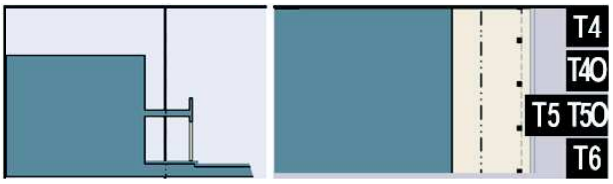
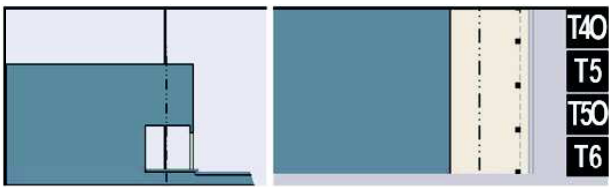
	T1	T2	T3	T4	T4O	T5	T5O	T6	SD	Specifications
Vase	■	■	■	■						_____ _____ _____ _____ _____ _____ _____

(Ord. 16945 § 2 (part), 2008)
(Ord. No. 17542, § 38(Exh. H), 4-26-2011; Ord. No. 17787, § 17(Exh. H), 5-15-2012)

21.80.100 Table 7: Private Frontages.

The Private Frontage is the area between the building Facades and the Lot lines.

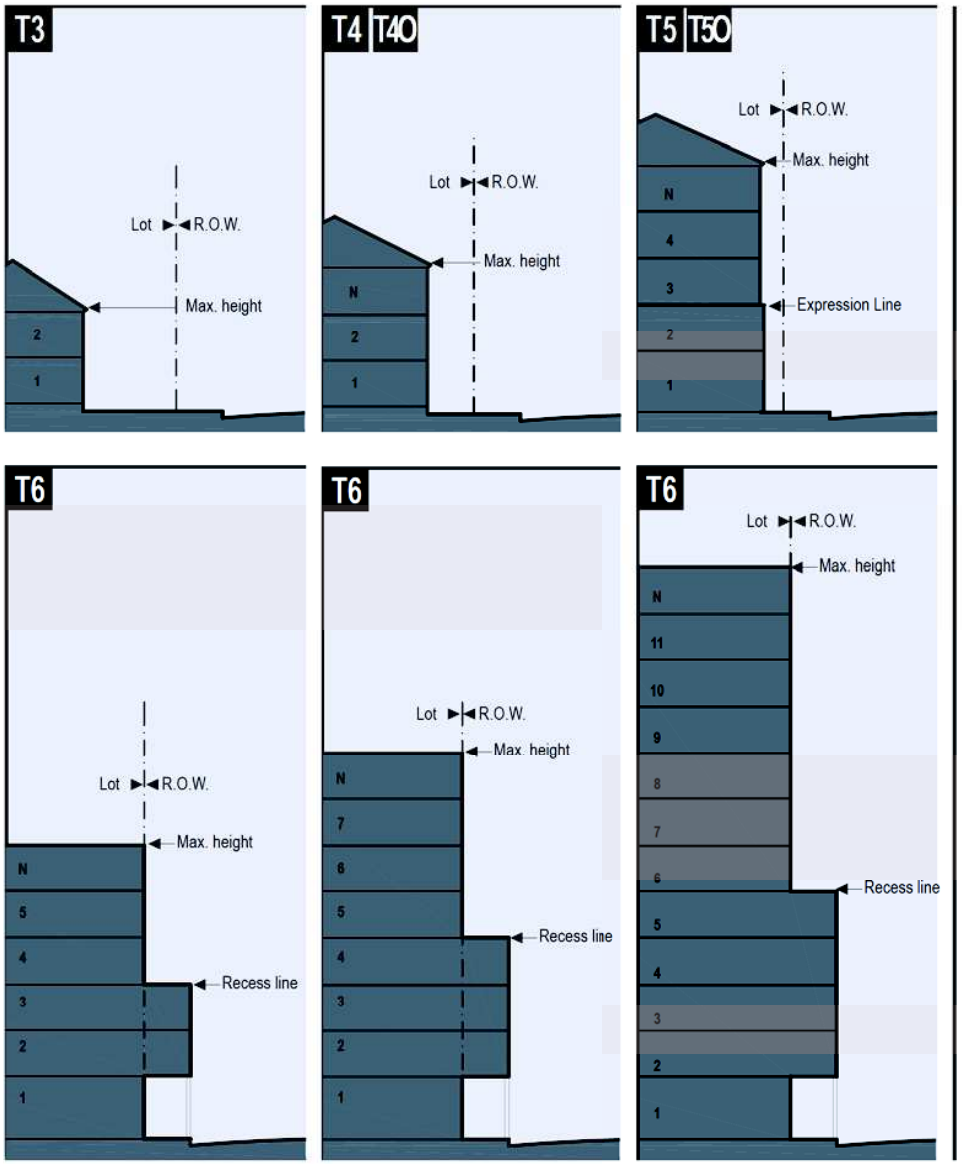
	SECTION LOT ▶ ◀ R.O.W. PRIVATE ▶ ◀ PUBLIC FRONTAGE FRONTAGE	PLAN LOT ▶ ◀ R.O.W. PRIVATE ▶ ◀ PUBLIC FRONTAGE FRONTAGE
a. Common Yard: a planted Frontage wherein the Facade is set back substantially from the Frontage Line. The front yard created remains unfenced and is visually continuous with adjacent yards, supporting a common landscape. The deep Setback provides a buffer from the higher speed Thoroughfares.		
b. Porch & Fence: a planted Frontage wherein the Facade is set back from the Frontage Line with an attached porch permitted to Encroach. A fence at the Frontage Line maintains street spatial definition. Porches shall be no less than 8 feet deep.		
c. Terrace or **Lightwell:** a Frontage wherein the Facade is set back from the Frontage line by an elevated terrace or a sunken Lightwell. This type buffers Residential use from urban Sidewalks and removes the private yard from public Encroachment. Terraces are suitable for conversion to outdoor cafes. Syn: **Dooryard**.		
d. Forecourt: a Frontage wherein a portion of the Facade is close to the Frontage Line and the central portion is set back. The Forecourt created is suitable for vehicular drop-offs. This type should be allocated in conjunction with other Frontage types. Large trees within the Forecourts may overhang the Sidewalks.		
e. Stoop: a Frontage wherein the Facade is aligned close to the Frontage Line with the first Story elevated from the Sidewalk sufficiently to secure privacy for the windows. The entrance is usually an exterior stair and landing. This type is recommended for ground-floor Residential use.		
f. Shopfront: a Frontage wherein the Facade is aligned close to the Frontage Line with the building entrance at Sidewalk grade. This type is conventional for Retail use. It has a substantial glazing on the Sidewalk level and an awning that should overlap the Sidewalk to within 2 feet of the Curb. Syn: **Retail Frontage.**		

g. Gallery: a Frontage wherein the Facade is aligned close to the Frontage line with an attached cantilevered shed or a lightweight colonnade overlapping the Sidewalk. This type is conventional for Retail use. The Gallery shall be no less than 10 feet wide and should overlap the Sidewalk to within 2 feet of the Curb.	
h. Arcade: a Frontage wherein the Facade is a colonnade that overlaps the Sidewalk, while the Facade at Sidewalk level remains at the Frontage Line. This type is conventional for Retail use. The Arcade shall be no less than 12 feet wide and should overlap the Sidewalk to within 2 feet of the Curb.	

(Ord. 16945 § 2 (part), 2008)
(Ord. No. 17542, § 38(Exh. I), 4-26-2011; Ord. no. 17787, § 17(Exh. I), 5-15-2012)

21.80.110 Table 8: Building Configuration.

This table shows the Configurations for different building heights for each Transect Zone. It must be modified to show actual calibrated heights for local conditions. Recess Expression Lines shall occur on higher buildings as shown. N = maximum height as specified in Table 14k.



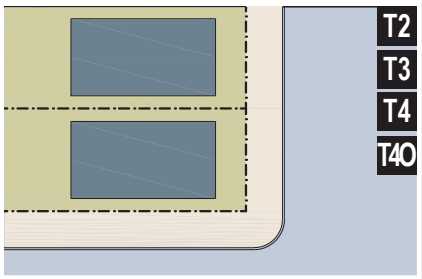
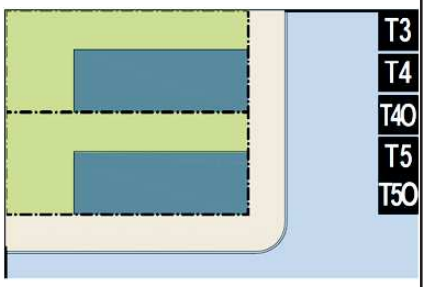
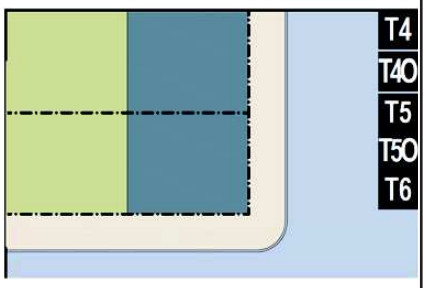
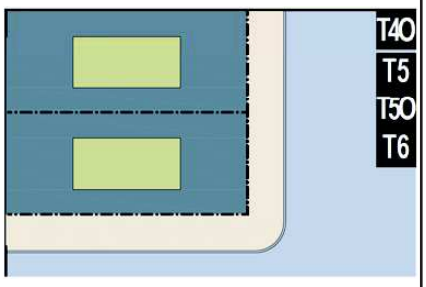
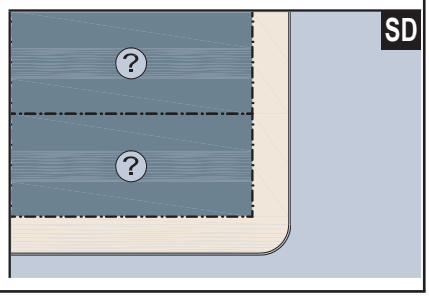
1. Building height shall be measured in number of Stories, excluding Attics and raised basements. Height limits also do not apply to masts, belfries, clock towers, chimney flues, water tanks, elevator bulkheads and similar structures.

2. Stories may not exceed 14 feet in height from finished floor to finished floor, except for a first floor Commercial Function, which shall be a minimum of 11 feet and may be a maximum of 25 feet.

3. Height shall be measured from the average Enfronting Sidewalk grade to the uppermost eave of a main pitched roof (not of a dormer), or to the uppermost roof deck (not the top of parapet) of a flat roof.
(Ord. 16945 § 2 (part), 2008)
(Ord. No. 17542, § 38(Exh. J), 4-26-2011; Ord. No. 17787, § 17(Exh. J), 5-15-2012)

21.80.120 Table 9: Building Disposition.

This table approximates the location of the structure relative to the boundaries of each individual Lot, establishing suitable basic building types for each Transect Zone.

a. Edgeyard: Specific Types - single family House, cottage, villa, estate house, urban villa. A building that occupies the center of its Lot with Setbacks on all sides. This is the least urban of types as the front yard sets it back from the Frontage, while the side yards weaken the spatial definition of the public Thoroughfare space. The front yard is intended to be visually continuous with the yards of adjacent buildings. The rear yard can be secured for privacy by fences and a well-placed Backbuilding and/or Outbuilding.	
b. Sideyard: Specific Types - Charleston single House, double house, zero lot line house, twin. A building that occupies one side of the Lot with the Setback to the other side. A shallow Frontage Setback defines a more urban condition. If the adjacent building is similar with a blank party wall, the yard can be quite private. This type permits systematic climatic orientation in response to the sun or the breeze. If a Sideyard House abuts a neighboring Sideyard House, the type is known as a twin or double House. Energy costs, and sometimes noise, are reduced by sharing a party wall in this Disposition.	
c. Rearyard: Specific Types - Townhouse, Rowhouse, Live-Work unit, loft building, Apartment House, Mixed Use Block Flex Building, perimeter Block. A building that occupies the full Frontage, leaving the rear of the Lot as the sole yard. This is a very urban type as the continuous Façade steadily defines the public Thoroughfare. The rear Elevations may be articulated for functional purposes. In its Residential form, this type is the Rowhouse. For its Commercial form, the rear yard can accommodate substantial parking.	
d. Courtyard: Specific Types - patio House. A building that occupies the boundaries of its Lot while internally defining one or more private patios. This is the most urban of types, as it is able to shield the private realm from all sides while strongly defining the public Thoroughfare. Because of its ability to accommodate incompatible activities, masking them from all sides, it is recommended for workshops, Lodging and schools. The high security provided by the continuous enclosure is useful for crime-prone areas.	
e. Specialized: A building that is not subject to categorization. Buildings dedicated to manufacturing and transportation are often distorted by the trajectories of machinery. Civic Buildings, which may express the aspirations of institutions, may be included.	

(Ord. 16945 § 2 (part), 2008)

(Ord. No. 17542, § 38(Exh. K), 4-26-2011; Ord. No. 17787, § 17(Exh. K), 5-15-2012)

21.80.130 Table 10: Building Function - General.

This table categorizes Building Functions within Transect Zones. Parking requirements are correlated to functional intensity. For Specific Function and Use permitted By Right or by Warrant, see Table 12.

	T2 T3	T4	T4O T5 T5O T6
a. RESIDENTIAL	**Restricted Residential:** The number of dwellings on each Lot is restricted to four within a Principal Building and one within an Accessory Building, with 2.0 parking places for each. The habitable area of the Accessory dwelling shall not exceed 500 square feet.	**Limited Residential:** The number of dwellings on each Lot is limited by the requirement of 1.5 parking places for each dwelling, a ratio which may be reduced according to the Shared Parking standards (See Table 11).	**Open Residential:** The number of dwellings on each Lot is limited by the requirement of 1.0 parking places for each dwelling, a ratio which may be reduced according to the Shared Parking standards (See Table 11).
b. LODGING	**Restricted Lodging:** The number of bedrooms available on each Lot for lodging is limited by the requirement of 1.0 assigned parking place for each bedroom, up to five, in addition to the parking requirement for the dwelling. The Lodging must be owner occupied. Food service may be provided in the a.m. The maximum length of stay shall not exceed ten days.	**Limited Lodging:** The number of bedrooms available on each Lot for lodging is limited by the requirement of 1.0 assigned parking place for each bedroom, up to twelve, in addition to the parking requirement for the dwelling. The Lodging must be owner occupied. Food service may be provided in the a.m. The maximum length of stay shall not exceed ten days.	**Open Lodging:** The number of bedrooms available on each Lot for lodging is limited by the requirement of 1.0 assigned parking place for each bedroom. Food service may be provided at all times. The area allocated for food service shall be calculated and provided with parking according to Retail Function.
c. OFFICE	**Restricted Office:** The building area available for office use on each Lot is restricted to the first Story of the Principal or the Accessory Building and by the requirement of 3.0 assigned parking places per 1,000 square feet of net office space in addition to the parking requirement for each dwelling.	**Limited Office:** The building area available for office use on each Lot is limited to the first Story of the principal building and/or to the Accessory Building, and by the requirement of 3.0 assigned parking places per 1,000 square feet of net office space in addition to the parking requirement for each dwelling.	**Open Office:** The building area available for office use on each Lot is limited by the requirement of 2.0 assigned parking places per 1,000 square feet of net office space.
d. RETAIL	**Restricted Retail:** The building area available for Retail use is restricted to one Block corner location at the first Story for each 300 dwelling units and by the requirement of 4.0 assigned parking spaces per 1,000 square feet of net Retail Space in addition to the parking requirement of each dwelling. The specific use shall be further limited to neighborhood store, or food service seating no more than 20.	**Limited Retail:** The building area available for Retail use is limited to the first Story of buildings at corner locations, not more than one per Block, and by the requirement of 4.0 assigned parking places per 1,000 square feet of net Retail space in addition to the parking requirement of each dwelling. The specific use shall be further limited to neighborhood store, or food service seating no more than 40.	**Open Retail:** The building area available for Retail use is limited by the requirement of 3.0 assigned parking places per 1,000 square feet of net Retail space. Retail spaces under 1,500 square feet are exempt from parking requirements.
e. CIVIC	See Table 12	See Table 12	See Table 12
f. OTHER	See Table 12	See Table 12	See Table 12

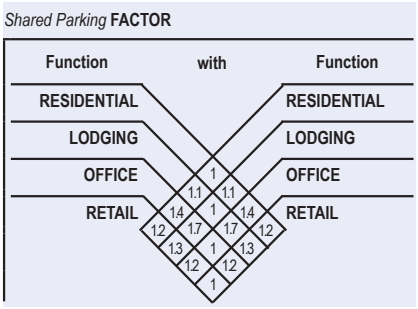
(Ord. 16945 § 2 (part), 2008)

(Ord. No. 17542, § 38(Exh. L), 4-26-2011; Ord. No. 17787, § 17(Exh. L), 5-15-2012)

21.80.140 Table 11: Parking Calculations.

The Required Parking table summarizes the parking requirements of Table 10 for each site or, conversely, the amount of building allowed on each site given the parking available.

	REQUIRED PARKING (See Table 10)		
	T2 T3	T4	T4O T5 T5O T6
RESIDENTIAL	2.0/dwelling	1.5/dwelling	1.0/dwelling
LODGING	1.0/bedroom	1.0/bedroom	1.0/bedroom
OFFICE	3.0/1,000 sq. ft.	3.0/1,000 sq. ft.	2.0/1,000 sq. ft.
RETAIL	4.0/1,000 sq. ft.	4.0/1,000 sq. ft.	3.0/1,000 sq. ft.
CIVIC	Determined by Chapter 20.14 and Appendix C of the El Paso Municipal Code. On street parking available along the corresponding frontage lines shall be counted toward the parking requirement of the building on the lot. The required parking may also be provided within on-quarter mile of the site it served.		
OTHER	See requirements for Civic.		



(Ord. 16945 § 2 (part), 2008; Ord. No. 17542, § 38(Exh. L), 4-26-2011; Ord. No. 17787, § 17(Exh. L), 5-15-2012)

21.80.150 Table 12: Specific Function & Use.

This table expands the categories of Table 10 to delegate specific Functions and uses within Transect Zones. Table 12 should be customized for local character and requirements.

	T1	T2	T3	T4	T4O	T5	T5O	T6	SD
a. RESIDENTIAL									
Mixed Use Block					■	■	■	■	■
Flex Building				■	■	■	■	■	■
Apartment Building				■	■	■	■	■	■
Live/Work Unit			■	■	■	■	■	■	■
Row House				■	■	■	■	■	
Duplex House				■	■	■			
Courtyard House				■	■	■			
Sideyard House			■	■	■	■			
Cottage		■	■	■	■				
House		■	■	■	■				
Villa		■	■	■	■				
Accessory Unit		■	■	■	■	■			
b. LODGING									
Hotel (no room limit)						■	■	■	■
Inn (up to 12 rooms)		■		■	■	■	■	■	■
Bed & Breakfast (up to 5 rooms)		■	■	■	■	■	■	■	
School Dormitory				■	■	■	■	■	■
c. OFFICE									
Office Building				■	■	■	■	■	■
Live-Work Unit			■	■	■	■	■	■	■
d. RETAIL									
Open-Market Building		■	■	■	■	■	■	■	■
Retail Building				■	■	■	■	■	■
Display Gallery				■	■	■	■	■	■
Restaurant				■	■	■	■	■	■
Kiosk				■	■	■	■	■	■
Push Cart					■	■	■	■	■
Liquor Selling Establishment				■	■	■	■	■	■
e. CIVIC									
Bus Shelter			■	■	■	■	■	■	■
Convention Center								■	■
Conference Center					■	■	■	■	■

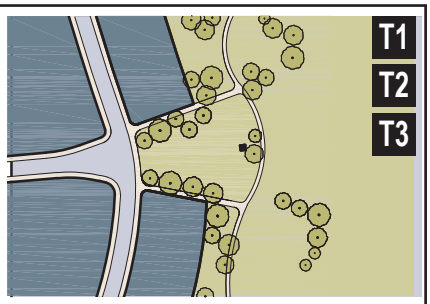
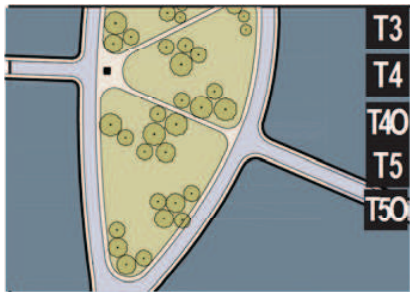
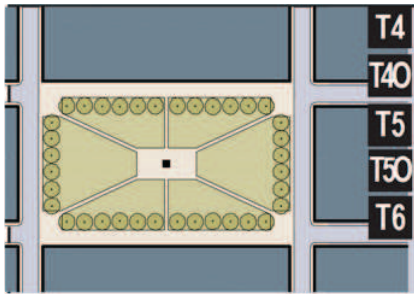
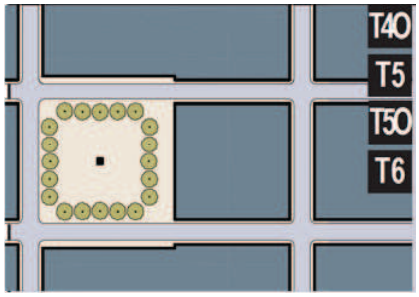
	T1	T2	T3	T4	T4O	T5	T5O	T6	SD
Exhibition Center								■	■
Fountain or Public Art		■	■	■	■	■	■	■	■
Library				■	■	■	■	■	■
Live Theater					■	■	■	■	■
Movie Theater					■	■	■	■	■
Museum					■	■	■	■	■
Outdoor Auditorium		■	■		■	■	■	■	■
Parking Structure					■	■	■	■	■
Passenger Terminal					■	■	■	■	■
Playground		■	■	■	■	■	■	■	■
Sports Stadium								■	■
Surface Parking Lot					■	■	■	■	■
Religious Assembly		■	■	■	■	■	■	■	■
f. OTHER: AGRICULTURE									
Grain Storage		■							
Livestock Pen		■							
Greenhouse	■	■	■						
Stable	■	■							
Kennel	■	■	■	■	■	■	■		
f. OTHER: AUTOMOTIVE									
Gasoline		■			■	■	■	■	■
Automobile Service									■
Truck Maintenance									■
Drive-Through Facility					■	■	■	■	■
Rest Stop	■	■							■
Roadside Stand	■	■		■					■
Billboard									■
Shopping Center									■
Shopping Mall									■
f. OTHER: CIVIL SUPPORT									
Fire Station			■	■	■	■	■	■	■
Police Station				■	■	■	■	■	■
Cemetery		■	■	■					■

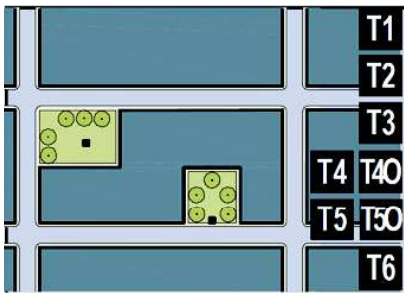
	T1	T2	T3	T4	T4O	T5	T5O	T6	SD
Funeral Home				■	■	■	■	■	■
Hospital					■	■	■	■	■
Medical Clinic				■	■	■	■	■	■
f. OTHER: EDUCATION									
College					■	■	■	■	■
High School				■	■	■	■	■	■
Trade School					■	■	■	■	■
Elementary School			■	■	■	■	■	■	■
Other-Child-care Center		■	■	■	■	■	■	■	■
f. OTHER: INDUSTRIAL									
Heavy Industrial Facility									■
Light Industrial Facility					■	■	■	■	■
Truck Depot									■
Laboratory Facility								■	■
Water Supply Facility									■
Sewer and Waste Facility									■
Electric Substation									■
Wireless Transmitter									■
Cremation Facility									■
Warehouse									■
Produce Storage									■
Self-Storage Warehouse						■	■		■

■ BY RIGHT

(Ord. 16945 § 2 (part), 2008)
(Ord. No. 17542, § 38(Exh. M), 4-26-2011; Ord. No. 17787, § 17(Exh. M), 5-15-2012; Ord. No. 18797, § 1(Exh. A), 7-10-2018)

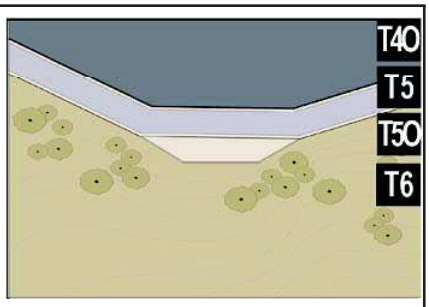
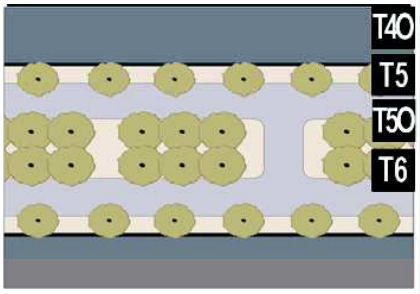
21.80.160 Table 13A: Civic Space.

a. Park: A natural preserve available for unstructured recreation. A park may be independent of surrounding building Frontages. Its landscape shall consist of Paths and trails, meadows, waterbodies, woodland and open shelters, all naturalistically disposed. Parks may be lineal, following the trajectories of natural corridors. The minimum size shall be 8 acres. Parks in excess of 15 acres may be approved as Special Districts in all zones.	
b. Green: An Open Space, available for unstructured recreation. A Green may be spatially defined by landscaping rather than building Frontages. Its landscape shall consist of lawn and trees, naturalistically disposed. The minimum size shall be ½ acre and the maximum shall be 8 acres.	
c. Square: An Open Space available for unstructured recreation and Civic purposes. A Square is spatially defined by building Frontages. Its landscape shall consist of Paths, lawns and trees, formally disposed. Squares shall be located at the intersection of important Thoroughfares. The minimum size shall be ½ acre and the maximum shall be 5 acres.	
d. Plaza: An Open Space available for Civic purposes and Commercial activities. A Plaza shall be spatially defined by building Frontages. Its landscape shall consist primarily of pavement. Trees are optional. Plazas should be located at the intersection of important streets. The minimum size shall be ¼ acre and the maximum shall be 2 acres.	

e. Playground: An Open Space designed and equipped for the recreation of children. A Playground may include an open shelter. Playgrounds shall be interspersed within Residential areas and may be placed within a Block. Playgrounds may be included within parks and greens. There shall be no minimum or maximum size.	

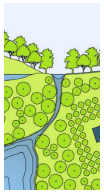
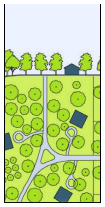
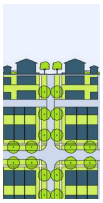
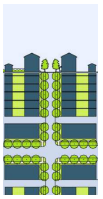
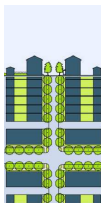
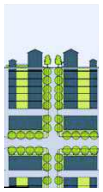
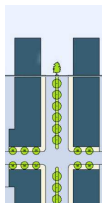
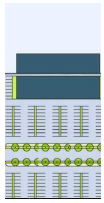
(Ord. 16945 § 2 (part), 2008)
(Ord. No. 17542, § 38(Exh. N), 4-26-2011; Ord. No. 17787, § 17(Exh. N), 5-15-2012)

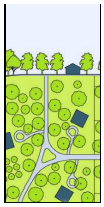
21.80.165 Table 13B: Civic Space.

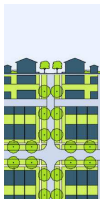
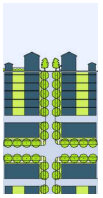
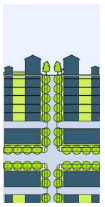
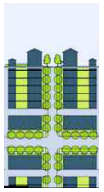
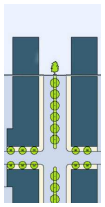
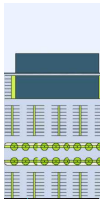
a. Promontory: A small open space located at the edge of a bluff or cliff primarily for viewing the natural landscape. It may be located to terminate streets or at intermittent intervals along edge streets. It may be of any shape. It is largely hardscaped with little planting. There shall be no minimum or maximum size for such a space.	
b. Rambla: A linear open space between one-way streets that extends for at least three successive blocks. The space largely hard-scaped with intermittent or potted planting and always lined with trees at the edges. The tree canopies typically cover the entire width of the space creating a shaded zone for communal activity. This space can be used flexibly on a daily, weekly or seasonal basis. It may be striped for parking during normal hours, converted into a farmer's market or closed with bollards for communal functions. Playgrounds may not be located within the Rambla. The minimum width of such a space shall be 16 feet, and the maximum shall be 40 feet.	

(Ord. No. 17787, § 17(Exh. O), 5-15-2012)

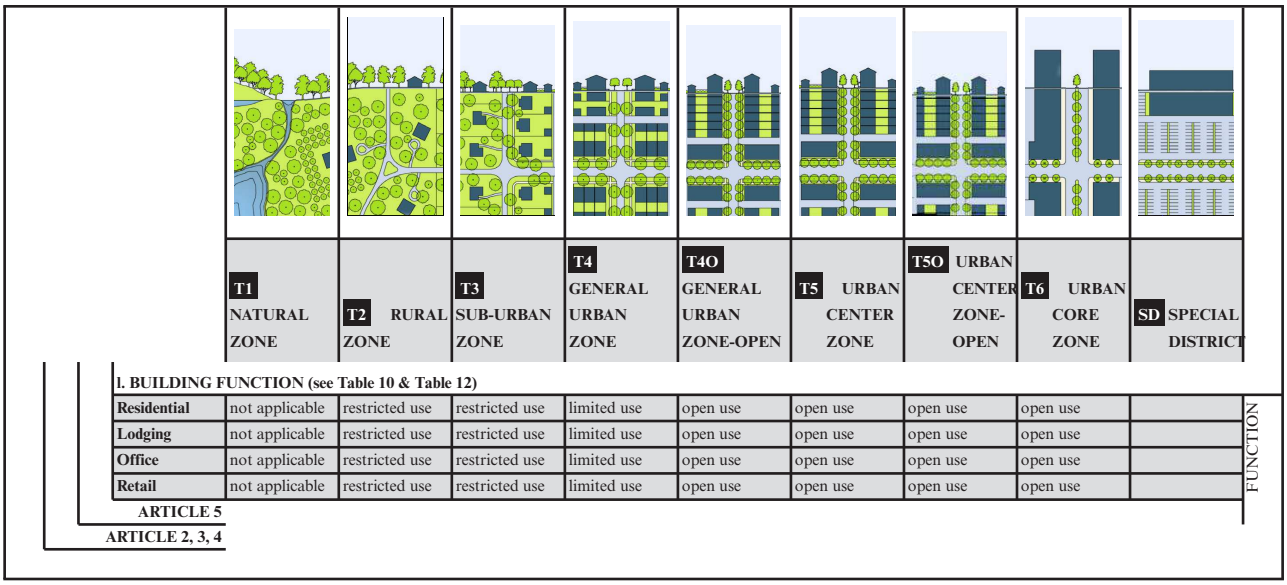
21.80.170 Table 14: Summary Table.

										
	T1 NATURAL ZONE	**T2 RURAL ZONE**	**T3 SUB-URBAN ZONE**	**T4 GENERAL URBAN ZONE**	**T4O GENERAL URBAN ZONE-OPEN**	**T5 URBAN CENTER ZONE**	**T5O URBAN CENTER ZONE-OPEN**	**T6 URBAN CORE ZONE**	**SD SPECIAL DISTRICT**	
a. ALLOCATION OF ZONES per Pedestrian Shed (applicable to Article 3 only)										
CLD requires	no minimum	50% min	20-40%	10-30%	20% max.	not permitted	not permitted	not permitted		
TND requires	no minimum	no minimum	10-30%	30-60%	40% max.	10-30%	30% max.	not permitted		
RCD requires	no minimum	no minimum	not permitted	10-30%	40% max.	10-30%	30% max.	40-80%		
b. BASE RESIDENTIAL DENSITY (see Section 3.8)										
Reserved										
By Right	by Variance	by Variance	6 units/ac. gross	15 units/ac. gross	20 units/ac. gross	24 units/ac. gross	26 units/ac. gross			
Other Functions	by Variance	by Variance	5-150% min	10-25% min	30-60% min	30-60% min	30-60% min			
c. BLOCK SIZE										
Block Perimeter	no maximum	no maximum	3,000 ft. max	2,400 ft. max	2,400 ft. max	2,000 ft. max	2,000 ft. max	2,000 ft. max		
d. THOROUGHFARES (see Table 3 and Table 4)										
HW	permitted	permitted	permitted	not permitted	not permitted	not permitted	not permitted	not permitted		
BV	not permitted	not permitted	permitted	permitted	permitted	permitted	permitted	permitted		
AV	not permitted	not permitted	permitted	permitted	permitted	permitted	permitted	permitted		
CS	not permitted	not permitted	not permitted	not permitted	permitted	permitted	permitted	permitted		
DR	not permitted	not permitted	permitted	permitted	permitted	permitted	permitted	permitted		
ST	not permitted	not permitted	permitted	permitted	permitted	permitted	permitted	not permitted		
RD	permitted	permitted	permitted	not permitted	not permitted	not permitted	not permitted	not permitted		
Rear Lane	permitted	permitted	permitted	required*	not permitted	not permitted	not permitted	not permitted		
Rear Alley	not permitted	not permitted	not permitted	required*	required*	required	required	required		
Path	permitted	permitted	permitted	permitted	permitted	not permitted	not permitted	not permitted		
Passage	not permitted	not permitted	permitted	permitted	permitted	permitted	permitted	permitted		
Bicycle Trail	permitted	permitted	permitted	not permitted**	not permitted**	not permitted	not permitted	not permitted		
Bicycle Lane	permitted	permitted	permitted	permitted	permitted	not permitted	not permitted	not permitted		
Bicycle Route	permitted	permitted	permitted	permitted	permitted	permitted	permitted	permitted		
e. CIVIC SPACES (see Table 3)				*Rear Lanes or Rear Alleys are required in T4 and T4O				**permitted within Open Spaces		
Park	permitted	permitted	permitted	not permitted	not permitted	not permitted	not permitted	not permitted		
Green	not permitted	not permitted	permitted	permitted	permitted	permitted	permitted	not permitted		
Square	not permitted	not permitted	not permitted	permitted	permitted	permitted	permitted	permitted		
Plaza	not permitted	not permitted	not permitted	not permitted	permitted	permitted	permitted	permitted		
Playground	permitted	permitted	permitted	permitted	permitted	permitted	permitted	permitted		



	T1 NATURAL ZONE	T2 RURAL ZONE	T3 SUB-URBAN ZONE	T4 GENERAL URBAN ZONE	T4O GENERAL URBAN ZONE-OPEN	T5 URBAN CENTER ZONE	T5O URBAN CENTER ZONE-OPEN	T6 URBAN CORE ZONE	SD SPECIAL DISTRICT	
f. LOT OCCUPATION										
Lot Width	not applicable	120 ft. min	50 ft. min 120 ft. max	20 ft. min 80 ft. max	20 ft. min 450 ft. max	18 ft. min 180 ft. max	18 ft. min 180 ft. max	18 ft. min 700 ft. max		DISPOSITION
Lot Coverage	not applicable	30% max	60% max	70% max	90% max	90% max	90% max	100% max		
g. SETBACKS - PRINCIPAL BUILDING				*only one building in excess of 200 ft. permitted per Pedestrian Shed						
Front Setback (Principal)	not applicable	48 ft. min	20 ft. min	0 ft. min 12 ft. max	0 ft. min 12 ft. max	0 ft. min 12 ft. max	0 ft. min 12 ft. max	0 ft. min 8 ft. max		
Front Setback (Secondary)	not applicable	48 ft. min	12 ft. min	6 ft. min 12 ft. max	6 ft. min 12 ft. max	0 ft. min 12 ft. max	0 ft. min 12 ft. max	0 ft. min 8 ft. max		
Side Setback	not applicable	96 ft. min	0 ft. or 18 ft. total min	0 ft. min	0 ft. min	0 ft. min 24 ft. max	0 ft. min 24 ft. max	0 ft. min 8 ft. max		
Rear Setback	not applicable	96 ft. min	12 ft. min	0 ft. min	0 ft. min	0 ft. min	0 ft. min	0 ft. min		
Frontage Buildout	not applicable	not applicable	40% min	60% min	80% min	80% min	80% min	90% min		
h. SETBACKS - OUTBUILDING						*20' with garage				
Front Setback	not applicable	20 ft. min +bldg setback	20 ft. min +bldg setback	24 ft. min +bldg setback	40 ft. max from rear prop	40 ft. max from rear prop	40 ft. max from rear prop	not applicable		
Side Setback	not applicable	3 ft. or 6 ft.	3 ft. or 6 ft.	0 ft. min or 3 ft.	0 ft. min	0 ft. min	0 ft. min	not applicable		
Rear Setback	not applicable	3 ft. min	3 ft. min	3 ft.	3 ft. max	3 ft. max	3 ft. min	not applicable		
i. BUILDING DISPOSITION (see Table 9)										
Edgeyard	permitted	permitted	permitted	permitted	permitted	not permitted	not permitted	not permitted		
Sideyard	not permitted	not permitted	permitted	permitted	permitted	permitted	permitted	not permitted		
Rearyard	not permitted	not permitted	not permitted	permitted	permitted	permitted	permitted	permitted		
Courtyard	not permitted	not permitted	not permitted	not permitted	permitted	permitted	permitted	permitted		
j. PRIVATE FRONTAGES (see Table 7)										
Common Yard	not applicable	permitted	permitted	not permitted	not permitted	not permitted	not permitted	not permitted		CONFIGURATION
Porch & Fence	not applicable	not permitted	permitted	permitted	not permitted	not permitted	not permitted	not permitted		
Terrace or L.C.	not applicable	not permitted	not permitted	permitted	permitted	permitted	permitted	not permitted		
Forecourt	not applicable	not permitted	not permitted	permitted	permitted	permitted	permitted	permitted		
Stoop	not applicable	not permitted	not permitted	permitted	permitted	permitted	permitted	permitted		
Shopfront & Awning	not applicable	not permitted	not permitted	permitted	permitted	permitted	permitted	permitted		
Gallery	not applicable	not permitted	not permitted	permitted	permitted	permitted	permitted	permitted		
Arcade	not applicable	not permitted	not permitted	not permitted	permitted	permitted	permitted	permitted		
k. BUILDING CONFIGURATION (see Table 8)										
Principal Building	not applicable	2 Stories max	2 Stories max	3 Stories max	4 Stories max, 20 ft. min	5 Stories max., 2 min	6 Stories max., 2 min	2 Stories min		
Outbuilding	not applicable	2 Stories max	2 Stories max	2 Stories max	2 Stories max	2 Stories max	2 Stories max	not applicable		



	T1 NATURAL ZONE	T2 RURAL ZONE	T3 SUB-URBAN ZONE	T4 GENERAL URBAN ZONE	T4O GENERAL URBAN ZONE-OPEN	T5 URBAN CENTER ZONE	T5O URBAN CENTER ZONE-OPEN	T6 URBAN CORE ZONE	SD SPECIAL DISTRICT
1. BUILDING FUNCTION (see Table 10 & Table 12)									
Residential	not applicable	restricted use	restricted use	limited use	open use	open use	open use	open use	
Lodging	not applicable	restricted use	restricted use	limited use	open use	open use	open use	open use	
Office	not applicable	restricted use	restricted use	limited use	open use	open use	open use	open use	
Retail	not applicable	restricted use	restricted use	limited use	open use	open use	open use	open use	

FUNCTION

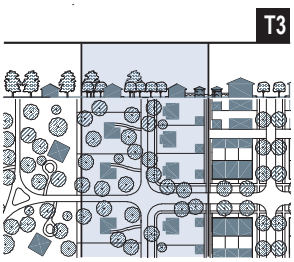
ARTICLE 5

ARTICLE 2, 3, 4

(Ord. 16945 § 2 (part), 2008)

(Ord. No. 17217, § 2, 10-20-2009; Ord. No. 17542, § 38(Exh. O), 4-26-2011; Ord. No. 17701, § 1(Exh. A), 1-3-2012; Ord. No. 17787, § 17(Exh. P), 5-15-2012)

21.80.180 Table 15A. Form-Based Code Graphics - T3.



(see Table 1)

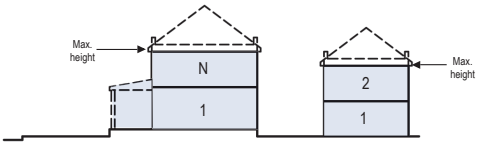
BUILDING FUNCTION (see Table 10 & Table 12)	
a. Residential	restricted use
b. Lodging	restricted use
c. Office	restricted use
d. Retail	restricted use
BUILDING CONFIGURATION (see Table 8)	
a. Principal Building	2 stories max.
b. Outbuilding	2 stories max.
LOT OCCUPATION	
a. Lot Width	50 ft. min 120 ft. max.
b. Lot Coverage	60% max
i. BUILDING DISPOSITION (see Table 9)	
a. Edgeyard	permitted
b. Sideyard	not permitted
c. Rearyard	not permitted
d. Courtyard	not permitted
SETBACKS - PRINCIPAL BUILDING	
a. Front Setback (P)	20 ft. min.
b. Front Setback (S)	12 ft. min.
c. Side Setback	0 ft. min. 18 ft. total min.
d. Rear Setback	12 ft. min.
Frontage Buildout	40% min at setback
h. SETBACKS - OUTBUILDING	
a. Front Setback	20 ft. min. +bldg. setback
b. Side Setback	3 ft. or 6 ft. min.
c. Rear Setback	3 ft. min.*
PRIVATE FRONTAGES (see Table 7)	
a. Common Yard	permitted
b. Porch & Fence	permitted
c. Terrace or L.C.	not permitted
d. Forecourt	not permitted
e. Stoop	not permitted
f. Shopfront & Awning	not permitted
g. Gallery	not permitted
h. Arcade	not permitted
	Refer to Summary Table 14
PARKING REQUIREMENTS	

See Tables 10 & 11

(Ord. 16945 § 2 (part), 2008; Ord. No. 17217, § 3, 10-20-2009)

BUILDING CONFIGURATION

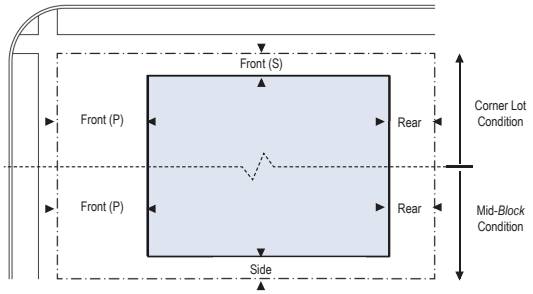
1. Building height shall be measured in number of Stories, excluding Attics and raised basements.
2. Stories may not exceed 14 feet in height from finished floor to finished ceiling, except for a first floor Commercial function which must be a minimum of 11 ft. with no maximum.
3. Height shall be measured to the eave or roof deck as specified on Table 8.



SETBACKS - PRINCIPAL BLDG

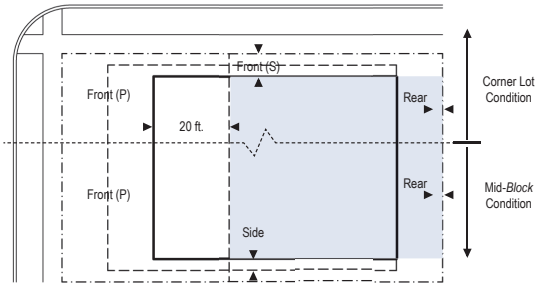
1. The Façades and Elevations of Principal Buildings shall be distanced from the Lot lines as shown.

2. Facades shall be built along the Principal Frontage to the minimum specified width in the table.



SETBACKS - OUTBUILDING

1. The Elevation of the Outbuilding shall be distanced from the Lot lines as shown.

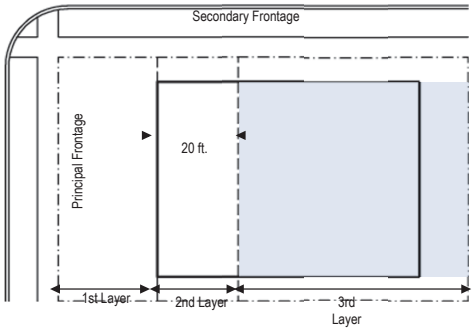


PARKING PLACEMENT

1. Uncovered parking spaces may be provided within the 2nd and 3rd Layer as shown in the diagram (see Table 17d).

2. Covered parking shall be provided within the 3rd Layer as shown in the diagram (see Table 17d).

3. Trash containers shall be stored within the 3rd Layer.

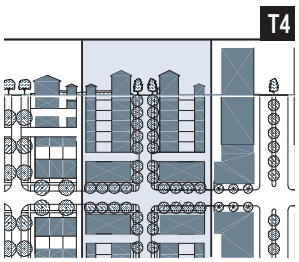


*or 15 ft. from center line of rear lane or alley

Graphics are illustrative only. Refer to metrics for Setback and height information.

"N" stands for any Stories above those shown, up to the maximum. Refer to metrics for exact minimums and maximums.

21.80.190 Table 15B. Form-Based Code Graphics - T4.



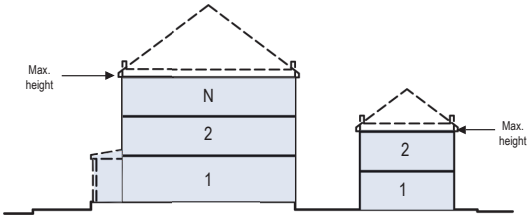
(see Table 1)

BUILDING FUNCTION (see Table 10 & Table 12)	
a. Residential	limited use
b. Lodging	limited use
c. Office	limited use
d. Retail	limited use
BUILDING CONFIGURATION (see Table 8)	
a. Principal Building	2 stories max.
b. Outbuilding	2 stories max.
LOT OCCUPATION	
a. Lot Width	20 ft. min 80 ft. max.
b. Lot Coverage	70% max
i. BUILDING DISPOSITION (see Table 8)	
a. Edgeyard	permitted
b. Sideyard	permitted
c. Rearyard	permitted
d. Courtyard	permitted
SETBACKS - PRINCIPAL BUILDING	
a. Front Setback (P)	0 ft. min. 12 ft. max.
b. Front Setback (S)	6 ft. min. 12 ft. max.
c. Side Setback	0 ft. min.
d. Rear Setback	0 ft. min.*
Frontage Buildout	60% min. at setback
SETBACKS - OUTBUILDING	
a. Front Setback	24 ft. min. +bldg. setback
b. Side Setback	0 ft. or 3 ft. min.
c. Rear Setback	3 ft. min.
PRIVATE FRONTAGES (see Table 7)	
a. Common Yard	not permitted
b. Porch & Fence	permitted
c. Terrace or L.C.	permitted
d. Forecourt	permitted
e. Stoop	permitted
f. Shopfront & Awning	permitted
g. Gallery	permitted
h. Arcade	not permitted
	Refer to Summary Table 14
PARKING REQUIREMENTS	

See Tables 10 & 11
(Ord. 16945 § 2 (part), 2008)

BUILDING CONFIGURATION

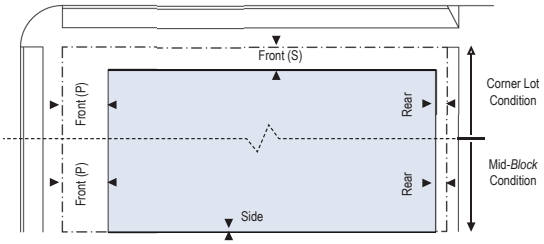
1. Building height shall be measured in number of Stories, excluding Attics and raised basements.
2. Stories may not exceed 14 feet in height from finished floor to finished ceiling, except for a first floor Commercial function which must be a minimum of 11 ft. with no maximum.
3. Height shall be measured to the eave or roof deck as specified on Table 8.



SETBACKS - PRINCIPAL BLDG

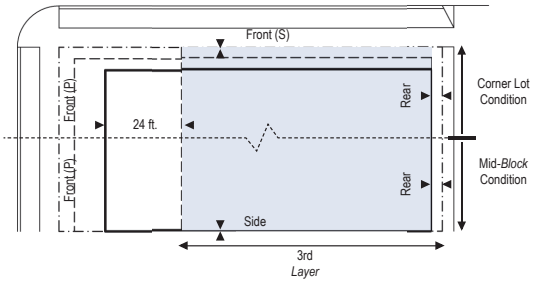
1. The Façades and Elevations of Principal Buildings shall be distanced from the Lot lines as shown.

2. Facades shall be built along the Principal Frontage to the minimum specified width in the table.



SETBACKS - OUTBUILDING

1. The Elevations of the Outbuilding shall be distanced from the Lot lines as shown.

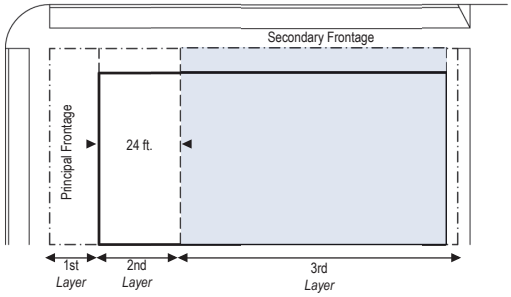


PARKING PLACEMENT

1. Uncovered parking spaces may be provided within the 3rd Layer as shown in the diagram (see Table 17d).

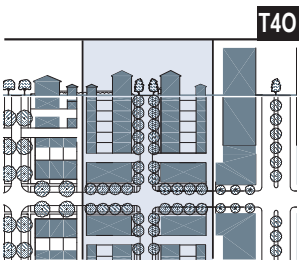
2. Covered parking shall be provided within the 3rd Layer as shown in the diagram (see Table 17d).

3. Trash containers shall be stored within the 3rd Layer.



*or 15 ft. from center line of alley
Graphics are illustrative only. Refer to metrics for Setback and height information.
"N" stands for any Stories above those shown, up to the maximum. Refer to metrics for exact minimums and maximums.

21.80.200 Table 15C. Form-Based Code Graphics - T4O.



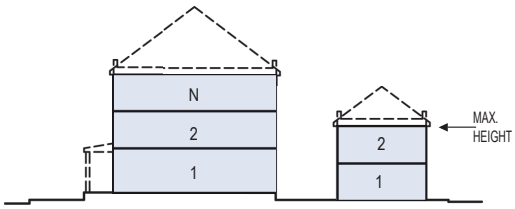
(see Table 1)

BUILDING FUNCTION (see Table 10 & Table 12)	
a. Residential	open use
b. Lodging	open use
c. Office	open use
d. Retail	open use
BUILDING CONFIGURATION (see Table 8)	
a. Principal Building	4 stories max. 20 ft. min.
b. Outbuilding	2 stories max.
LOT OCCUPATION	
a. Lot Width	20 ft. min 450 ft. max.*
b. Lot Coverage	90% max
BUILDING DISPOSITION (see Table 9)	
a. Edgeyard	permitted
b. Sideyard	permitted
c. Rearyard	permitted
d. Courtyard	permitted
SETBACKS - PRINCIPAL BUILDING	
a. Front Setback (P)	0 ft. min. 12 ft. max.
b. Front Setback (S)	6 ft. min. 12 ft. max.
c. Side Setback	0 ft. min.
d. Rear Setback	0 ft. min.**
Frontage Buildout	80% min. at setback
SETBACKS - OUTBUILDING	
a. Front Setback	40 ft. max. from rear prop.
b. Side Setback	0 ft.
c. Rear Setback	3 ft. max.
PRIVATE FRONTAGES (see Table 7)	
a. Common Yard	not permitted
b. Porch & Fence	not permitted
c. Terrace or L.C.	permitted
d. Forecourt	permitted
e. Stoop	permitted
f. Shopfront & Awning	permitted
g. Gallery	permitted
h. Arcade	permitted
	Refer to Summary Table 14
PARKING REQUIREMENTS	

See Tables 10 & 11

BUILDING CONFIGURATION

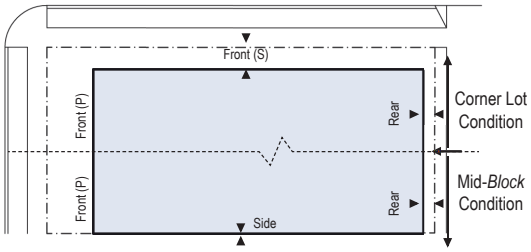
1. Building height shall be measured in number of Stories, excluding Attics and raised basements.
2. Stories may not exceed 14 feet in height from finished floor to finished ceiling, except for a first floor Commercial function which must be a minimum of 11 ft. with no maximum.
3. Height shall be measured to the eave or roof deck as specified on Table 8.
4. Principal Building minimum height shall be 20 ft.



SETBACKS - PRINCIPAL BLDG

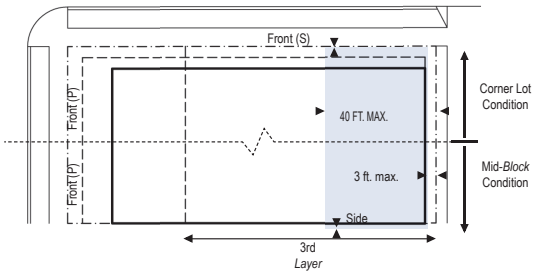
1. The Façades and Elevations of Principal Buildings shall be distanced from the Lot lines as shown.

2. Facades shall be built along the Principal Frontage to the minimum specified width in the table.



SETBACKS - OUTBUILDING

1. The Elevation of the Outbuilding shall be distanced from the Lot lines as shown.

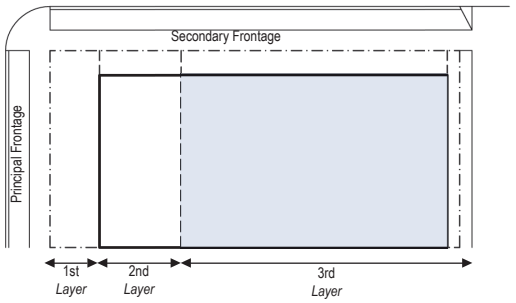


PARKING PLACEMENT

1. Uncovered parking spaces may be provided within the 3rd Layer as shown in the diagram (see Table 17d).

2. Covered parking shall be provided within the 3rd Layer as shown in the diagram (see Table 17d).

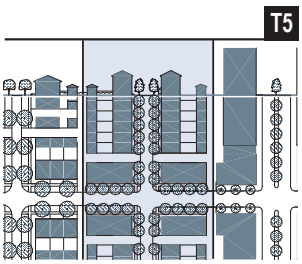
3. Trash containers shall be stored within the 3rd Layer.



*only 1 building in excess of 200 ft. wide permitted per Pedestrian Shed
**or 15 ft. from center line of alley
Graphics are illustrative only. Refer to metrics for Setback and height information.
"N" stands for any Stories above those shown, up to the maximum. Refer to metrics for exact minimums and maximums.

(Ord. No. 17542, § 38(Exh. P), 4-26-2011; Ord. No. 17701, § 1(Exh. B), 1-3-2012)

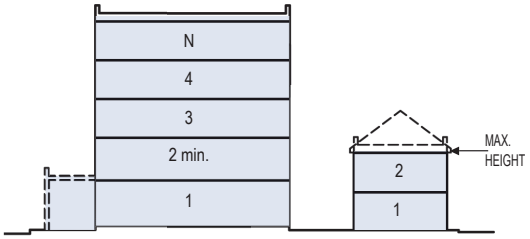
21.80.210 Table 15D. Form-Based Code Graphics - T5.



(see Table 1)

BUILDING CONFIGURATION

1. Building height shall be measured in number of Stories, excluding Attics and raised basements.
2. Stories may not exceed 14 feet in height from finished floor to finished ceiling, except for a first floor. Commercial function which must be a minimum of 11 ft. with no maximum.
3. Height shall be measured to the eave or roof deck as specified on Table 8.
4. Expression Lines shall be as shown on Table 8.



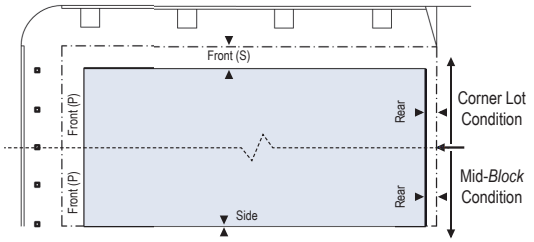
BUILDING FUNCTION (see Table 10 & Table 12)	
a. Residential	open use
b. Lodging	open use
c. Office	open use
d. Retail	open use
BUILDING CONFIGURATION (see Table 8)	
a. Principal Building	5 stories max. 2 min.
b. Outbuilding	2 stories max.
LOT OCCUPATION	
a. Lot Width	18 ft. min 180 ft. max.
b. Lot Coverage	90% max
BUILDING DISPOSITION (see Table 9)	
a. Edgeyard	not permitted
b. Sideyard	permitted
c. Rearyard	permitted
d. Courtyard	permitted
SETBACKS - PRINCIPAL BUILDING	
a. Front Setback (P)	0 ft. min. 12 ft. max.
b. Front Setback (S)	0 ft. min. 12 ft. max.
c. Side Setback	0 ft. min. 24 ft. max.
d. Rear Setback	0 ft. min.*
Frontage Buildout	80% min. at setback
SETBACKS - OUTBUILDING	
a. Front Setback	40 ft. max. from rear prop.
b. Side Setback	0 ft.
c. Rear Setback	3 ft. max.
PRIVATE FRONTAGES (see Table 7)	
a. Common Yard	not permitted
b. Porch & Fence	not permitted
c. Terrace or L.C.	not permitted
d. Forecourt	permitted
e. Stoop	permitted
f. Shopfront & Awning	permitted
g. Gallery	permitted
h. Arcade	permitted
Refer to Summary Table 14	
PARKING REQUIREMENTS	

See Tables 10 & 11

SETBACKS - PRINCIPAL BLDG

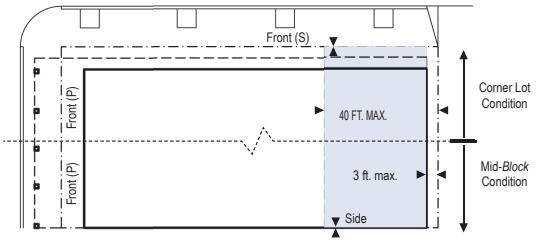
1. The Façades and Elevations of Principal Buildings shall be distanced from the Lot lines as shown.

2. Facades shall be built along the Principal Frontage to the minimum specified width in the table.



SETBACKS - OUTBUILDING

1. The Elevation of the Outbuilding shall be distanced from the Lot lines as shown.

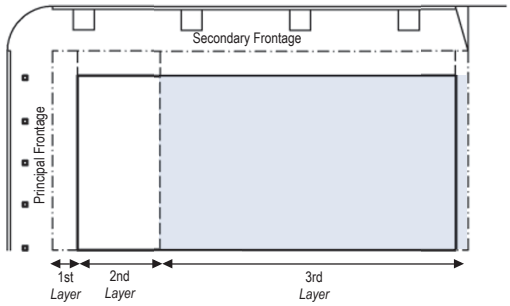


PARKING PLACEMENT

1. Uncovered parking spaces may be provided within the 2nd and 3rd Layer as shown in the diagram (see Table 17d).

2. Covered parking shall be provided within the 3rd Layer as shown in the diagram (see Table 17d).

3. Trash containers shall be stored within the 3rd Layer.



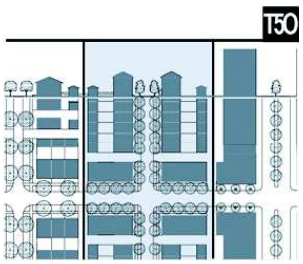
*or 15 ft. from center line of alley

Graphics are illustrative only. Refer to metrics for Setback and height information.

"N" stands for any Stories above those shown, up to the maximum. Refer to metrics for exact minimums and maximums.

(Ord. 16945 § 2 (part), 2008; Ord. No. 17542, § 38(Exh. Q), 4-26-2011)

21.80.215 Table 15E. Form-Based Code Graphics - T5O.



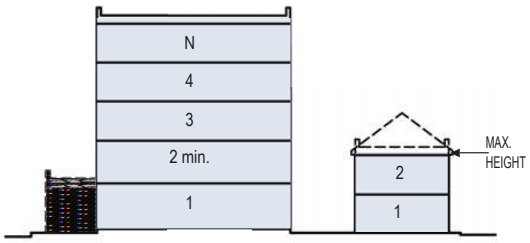
(see Table 1)

BUILDING FUNCTION (see Table 10 & Table 12)	
a. Residential	open use
b. Lodging	open use
c. Office	open use
d. Retail	open use
BUILDING CONFIGURATION (see Table 8)	
a. Principal Building	6 stories max. 2 min.
b. Outbuilding	2 stories max.
LOT OCCUPATION	
a. Lot Width	18 ft. min 180 ft. max.
b. Lot Coverage	90% max
BUILDING DISPOSITION (see Table 9)	
a. Edgeyard	not permitted
b. Sideyard	permitted
c. Rearyard	permitted
d. Courtyard	permitted
SETBACKS - PRINCIPAL BUILDING	
a. Front Setback (P)	0 ft. min. 12 ft. max.
b. Front Setback (S)	0 ft. min. 12 ft. max.
c. Side Setback	0 ft. min. 24 ft. max.
d. Rear Setback	0 ft. min.*
Frontage Buildout	80% min. at setback
SETBACKS - OUTBUILDING	
a. Front Setback	40 ft. max. from rear prop.
b. Side Setback	0 ft.
c. Rear Setback	3 ft. max.
PRIVATE FRONTAGES (see Table 7)	
a. Common Yard	not permitted
b. Porch & Fence	not permitted
c. Terrace or L.C.	not permitted
d. Forecourt	permitted
e. Stoop	permitted
f. Shopfront & Awning	permitted
g. Gallery	permitted
h. Arcade	permitted
	Refer to Summary Table 14
PARKING REQUIREMENTS	

See Tables 10 & 11
(Ord. No. 17787, § 17(Exh. Q), 5-15-2012)

BUILDING CONFIGURATION

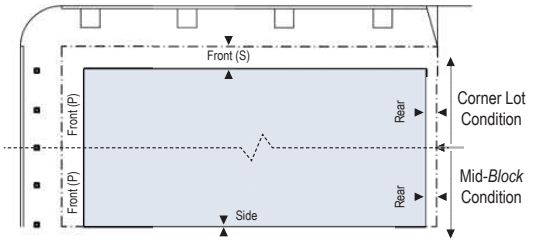
1. Building height shall be measured in number of Stories, excluding Attics and raised basements.
2. Stories may not exceed 14 feet in height from finished floor to finished ceiling, except for a first floor. Commercial function which must be a minimum of 11 ft. with no maximum.
3. Height shall be measured to the eave or roof deck as specified on Table 8.
4. Expression Lines shall be as shown on Table 8.



SETBACKS - PRINCIPAL BLDG

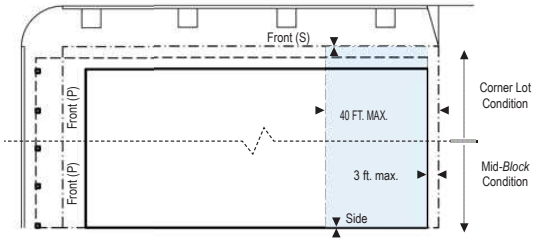
1. The Façades and Elevations of Principal Buildings shall be distanced from the Lot lines as shown.

2. Facades shall be built along the Principal Frontage to the minimum specified width in the table.



SETBACKS - OUTBUILDING

1. The Elevation of the Outbuilding shall be distanced from the Lot lines as shown.

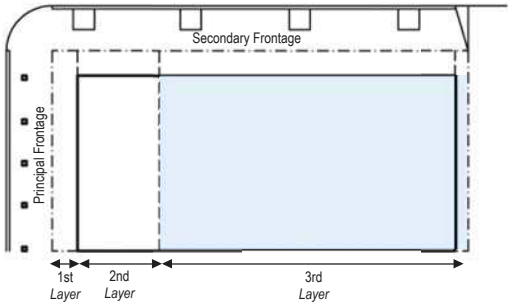


PARKING PLACEMENT

1. Uncovered parking spaces may be provided within the 2nd and 3rd Layer as shown in the diagram (see Table 17d).

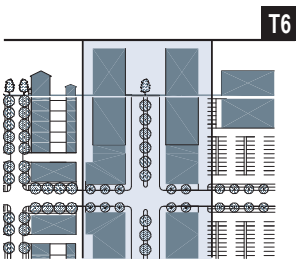
2. Covered parking shall be provided within the 3rd Layer as shown in the diagram (see Table 17d).

3. Trash containers shall be stored within the 3rd Layer.



*or 15 ft. from center line of alley
Graphics are illustrative only. Refer to metrics for Setback and height information.
"N" stands for any Stories above those shown, up to the maximum. Refer to metrics for exact minimums and maximums.

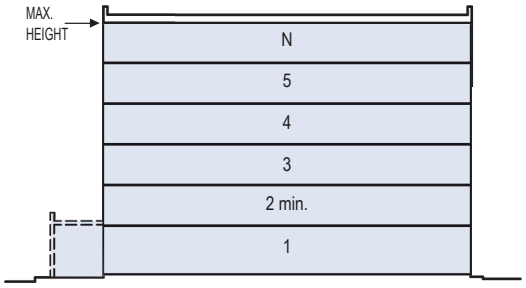
21.80.220 Table 15F. Form-Based Code Graphics - T6.



(see Table 1)

BUILDING CONFIGURATION

1. Building height shall be measured in number of Stories, excluding Attics and raised basements.
2. Stories may not exceed 14 feet in height from finished floor to finished ceiling, except for a first floor. Commercial function which must be a minimum of 11 ft. with no maximum.
3. Height shall be measured to the eave or roof deck as specified on Table 8.
4. Stepback and Recess Lines shall be as shown on Table 8.



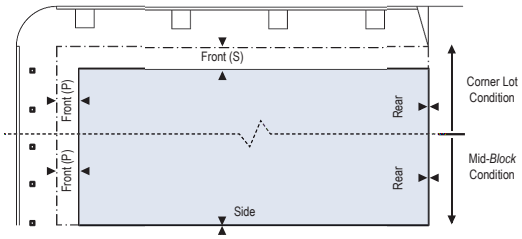
BUILDING FUNCTION (see Table 10 & Table 12)	
a. Residential	open use
b. Lodging	open use
c. Office	open use
d. Retail	open use
BUILDING CONFIGURATION (see Table 8)	
a. Principal Building	2 min.
b. Outbuilding	N/A
LOT OCCUPATION	
a. Lot Width	18 ft. min 700 ft. max.
b. Lot Coverage	100% max
BUILDING DISPOSITION (see Table 9)	
a. Edgeyard	not permitted
b. Sideyard	not permitted
c. Rearyard	permitted
d. Courtyard	not permitted
SETBACKS - PRINCIPAL BUILDING	
a. Front Setback (P)	0 ft. min. 8 ft. max.
b. Front Setback (S)	0 ft. min. 8 ft. max.
c. Side Setback	0 ft. min. 8 ft. max.
d. Rear Setback	0 ft. min.*
Frontage Buildout	90% min. at setback
SETBACKS - OUTBUILDING	
a. Front Setback	N/A
b. Side Setback	N/A
c. Rear Setback	N/A
PRIVATE FRONTAGES (see Table 7)	
a. Common Yard	not permitted
b. Porch & Fence	not permitted
c. Terrace or L.C.	not permitted
d. Forecourt	permitted
e. Stoop	permitted
f. Shopfront & Awning	permitted
g. Gallery	permitted
h. Arcade	permitted
	Refer to Summary Table 14
PARKING REQUIREMENTS	

See Tables 10 & 11

SETBACKS - PRINCIPAL BLDG

1. The Façades and Elevations of Principal Buildings shall be distanced from the Lot lines as shown.

2. Facades shall be built along the Principal Frontage to the minimum specified width in the table.

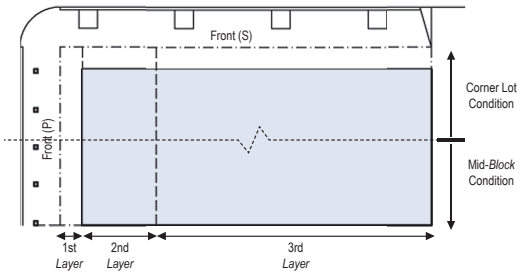


PARKING PLACEMENT

1. Uncovered parking spaces may be provided within the 3rd layer as shown in the diagram (see Table 17d).

2. Covered parking shall be provided within the 3rd Layer as shown in the diagram (see Table 17d).

3. Trash containers shall be stored within the 3rd Layer.



*or 15 ft. from center line of alley

Graphics are illustrative only. Refer to metrics for Setback and height information.

"N" stands for any Stories above those shown, up to the maximum. Refer to metrics for exact minimums and maximums.

(Ord. 16945 § 2 (part), 2008; Ord. No. 17542, § 38(Exh. R), 4-26-2011; Ord. No. 17787, § 17(Exh. R), 5-15-2012)

21.80.230 Table 16: Special District Standards.

The metrics for each column of this table (SD1, SD2, etc.) are to be filled in for each Special District as they currently exist, or as they are permitted. More pages can be added. Special Districts that do not have provisions within this Code shall be governed by the standards of the pre-existing zoning.

	SD1	SD2	SD3	SD4	SD5	SD6	SD7
a. ALLOCATION OF ZONES							
CLD	NA	NA	NA	NA	NA	NA	NA
TND	NA	NA	NA	NA	NA	NA	NA
TOD	NA	NA	NA	NA	NA	NA	NA
ARD	NA	NA	80% max.	50% max.	NA	NA	NA
AED	NA	NA	NA	50% max.	80% max.	NA	NA
b. BASE RESIDENTIAL DENSITY							
By Right	24	24	NA	NA	NA	48	24
Other Functions	50-70%	50-70%	NA	NA	NA	NA	50—100%
c. BLOCK SIZE							
Block Perimeter	3000 ft. max.*	3000 ft. max.*	2400 ft. max.*	3000 ft. max.*	4000 ft. max.*	2000 ft. max.*	3000 ft. max.
d. THOROUGHFARES							
HW	not permitted	not permitted	not permitted	not permitted	not permitted	not permitted	not permitted
BV	permitted	not permitted	permitted	permitted	permitted	permitted	not permitted
AV	permitted	permitted	permitted	permitted	permitted	permitted	not permitted
CS	permitted	permitted	permitted	permitted	permitted	permitted	permitted
DR	permitted	permitted	permitted	permitted	permitted	permitted	permitted
ST	permitted	permitted	permitted	permitted	permitted	permitted	permitted
RD	not permitted	not permitted	not permitted	not permitted	not permitted	not permitted	not permitted
Rear Lane	not permitted	not permitted	not permitted	not permitted	not permitted	not permitted	permitted
Rear Alley	permitted	permitted	permitted	permitted	permitted	permitted	permitted
Path	permitted	permitted	not permitted	not permitted	not permitted	permitted	permitted
Passage	permitted	permitted	permitted	permitted	permitted	permitted	permitted
Bicycle Trail	permitted	not permitted	not permitted	not permitted	not permitted	not permitted	permitted
Bicycle Lane	permitted	permitted	permitted	permitted	permitted	permitted	permitted
Bicycle Route	permitted	permitted	permitted	permitted	permitted	permitted	permitted
e. CIVIC SPACES							
Park	permitted	permitted	permitted	permitted	permitted	not permitted	permitted
Green	permitted	permitted	permitted	permitted	permitted	permitted	permitted
Square	permitted	permitted	permitted	permitted	permitted	permitted	permitted
Plaza	permitted	permitted	permitted	permitted	permitted	permitted	permitted
Playground	permitted	permitted	NA	NA	NA	permitted	permitted

	SD1	SD2	SD3	SD4	SD5	SD6	SD7	
f. LOT OCCUPATION								
Lot Width	NA	NA	NA	NA	NA	18 ft. min. 700 ft. max.	NA	DISPOSITION
Lot Coverage	NA	NA	90% max.	90% max.	90% max.	100% max.	NA	
g. SETBACKS - PRINCIPAL BUILDING								
Front Setback	0 ft. min., 30 ft. max.	0 ft. min., 30 ft. max.	0 ft. min., 12 ft. max.	0 ft. min.	0 ft. max.	0 ft. min., 8 ft. max.	0 ft. min., 20 ft. max.	
Side Setback	0 ft. min.	0 ft. min.	0 ft. min. 24 ft. max.	0 ft. min.	6 ft. max.	0 ft. min.	0 ft. min.	
Rear Setback	0 ft. min.	3 ft. min.	3 ft. min.	3 ft. min.	3 ft. min. or 20 ft. min.**	3 ft. min.	0 ft. min.	
h. BUILDING DISPOSITION								
Edgeyard	permitted	permitted	permitted	permitted	permitted	permitted	permitted	
Sideyard	permitted	permitted	permitted	permitted	permitted	permitted	permitted	
Rearyard	permitted	permitted	permitted	permitted	permitted	permitted	permitted	
i. PRIVATE FRONTAGES								
Common Yard	permitted	not permitted	permitted	permitted	permitted	permitted	permitted	CONFIGURATION
Porch & Fence	not permitted	not permitted	permitted	not permitted	not permitted	not permitted	permitted	
Terrace or L.C.	permitted	permitted	permitted	permitted	permitted	permitted	permitted	
Forecourt	permitted	permitted	permitted	permitted	permitted	permitted	permitted	
Stoop	permitted	permitted	permitted	permitted	permitted	permitted	permitted	
Shopfront	permitted	permitted	permitted	permitted	permitted	permitted	permitted	
Gallery	permitted	permitted	permitted	permitted	permitted	permitted	permitted	
Arcade	permitted	permitted	permitted	permitted	not permitted	permitted	permitted	
Parking Lot	permitted	permitted	not permitted	not permitted	permitted	not permitted	permitted	
j. BUILDING CONFIGURATION								
Principal Building	6 Stories, max.	8 Stories, max.	12 Stories, max.**	6 Stories, max.**	3 Stories, max.**	NA	6 stories max.	
Outbuilding	NA	NA	3 Stories, max.**	3 Stories, max.**	2 Stories, max.**	NA	NA	
k. BUILDING FUNCTION								
Residential	open use	open use	not applicable	not applicable	not applicable	open use	not applicable	FUNCTION
Lodging	open use	open use	open use****	not applicable	not applicable	open use	open use	
Office	open use	open use	open use	open use	open use	open use	open use	
Retail	open use	open use	open use	open use	open use	open use	open use	
Industrial	not applicable	not applicable	not applicable	open use	open use		not applicable	

* A Path or Passage may be used to determine Block size

** The 8 ft. and 3 ft. setbacks are for A Streets and the larger setbacks are for B Streets.

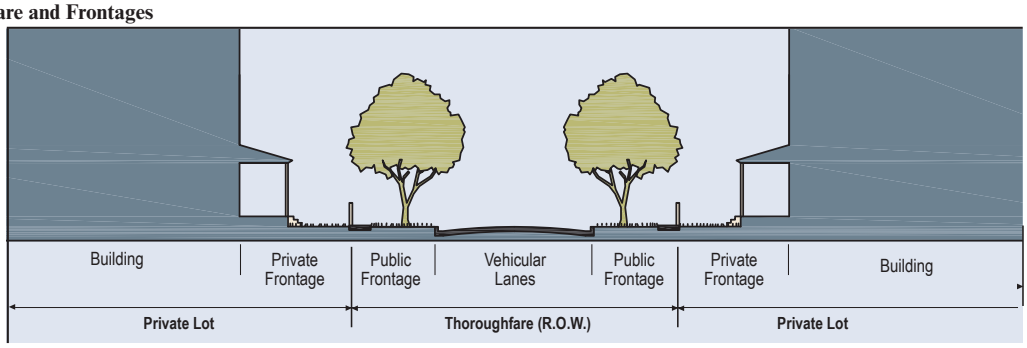
*** Building heights shall be limited to the height requirements established in Federal Aviation Regulations Part 77 or successor regulations for the Airport. Exclusions to this rule may be permitted by the Department of Aviation. SD5 shall be limited to 70 ft.

**** Lodging in SD Airport T5.1 shall be limited to areas indicated on the Airport Master Plan.

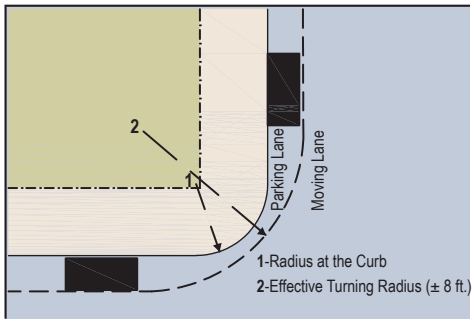
(Ord. 16945 § 2 (part), 2008; Ord. No. 17378, § 3(Exh. B), 8-24-2010; Ord. No. 17542, § 38(Exh. S), 4-26-2011; Ord. No. 17898, § 3(Exh. A), 10-30-2012; Ord. No. 17962, § 13(Exh. A), 3-5-2013; Ord. No. 18797, § 2(Exh. B), 7-10-2018)

21.80.240 Table 17. Definitions Illustrated.

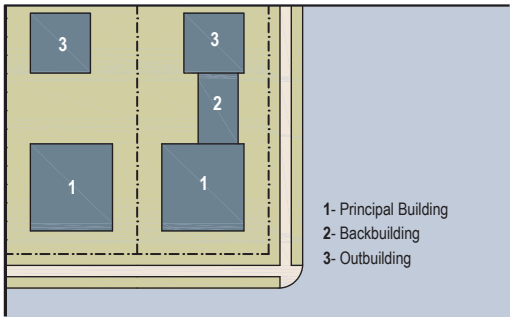
a. Thoroughfare and Frontages



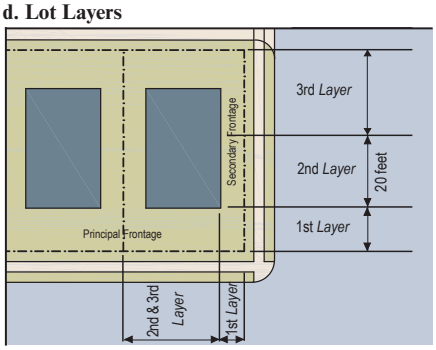
b. Turning Radius



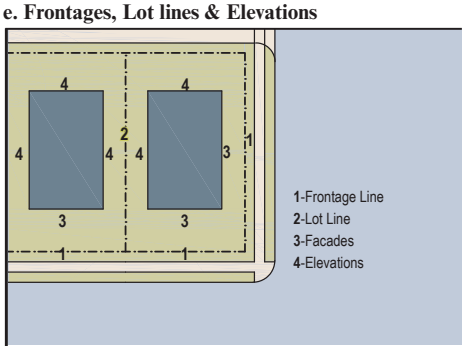
c. Building Disposition



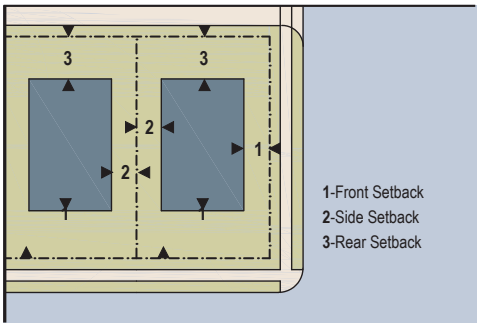
d. Lot Layers



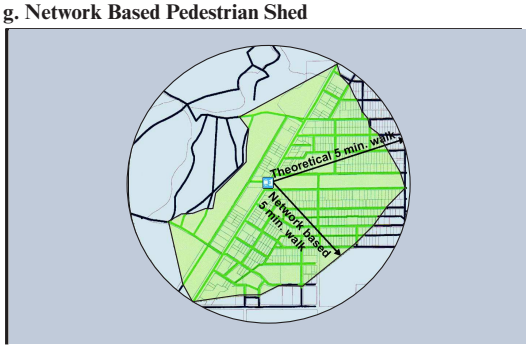
e. Frontages, Lot lines & Elevations



f. Setbacks



g. Network Based Pedestrian Shed



(Ord. 16945 § 2 (part), 2008)
(Ord. No. 17542, § 38(Exh. T), 4-26-2011)

STATUTORY REFERENCES FOR TEXAS CITIES AND TOWNS

The statutory references listed below refer the code user to state statutes applicable to Texas cities and towns. They are up to date through the conclusion of the 86th regular legislative session.

General Provisions

Types of municipalities in general
V.T.C.A., Local Government Code ch. 5 et seq.

Type A general law municipality
V.T.C.A., Local Government Code ch. 6

Type B general law municipality
V.T.C.A., Local Government Code ch. 7

Type C general law municipality
V.T.C.A., Local Government ch. 8

Home rule
V.T.C.A., Local Government Code ch. 9

Municipal boundaries
V.T.C.A., Local Government Code ch. 41

Annexations
V.T.C.A., Local Government Code ch. 43

Extraterritorial jurisdiction
V.T.C.A., Local Government Code ch. 42

Ordinances
V.T.C.A., Local Government Code ch. 52

Adoption of code of ordinances
V.T.C.A., Local Government Code ch. 53

Penalties for ordinance violations
V.T.C.A., Local Government Code ch. 54

Enforcement of federal and state immigration laws by local governments
V.T.C.A., Government Code § 752.051 et seq.

Time and place of elections
V.T.C.A., Election Code ch. 41 et seq.

Local Government Records Act
V.T.C.A., Local Government Code, § 201.001 et seq.

Public testimony before governmental body
V.T.C.A., Government Code, § 551.007

Administration and Personnel

Governing body of general-law municipality
V.T.C.A., Local Government Code ch. 21 et seq.

Duties of mayor in Class A municipality under aldermanic form of government
V.T.C.A., Local Government Code, § 22.042

Aldermanic form of government in type A general law municipality
V.T.C.A., Local Government Code ch. 22

Aldermanic form of government in type B general law municipality
V.T.C.A., Local Government Code ch. 23

Commission form of government in general law municipality
V.T.C.A., Local Government Code ch. 24

City manager form of government in general law municipality
V.T.C.A., Local Government Code ch. 25

Compensation of municipal officers and employees
V.T.C.A., Local Government Code ch. 141

Political activities of firefighters and police officers
V.T.C.A., Local Government Code § 150.001 et seq.

Emergency management
V.T.C.A., Government Code ch. 418

Temporary suspension of requirements for Governmental body impacted by catastrophe
V.T.C.A., Government Code § 552.223

Revenue and Finance

Local debt annual report
V.T.C.A., Local Government Code, § 140.008

Taxation powers of municipalities
V.T.C.A., Tax Code ch. 302

Municipal sales and use taxes
V.T.C.A., Tax Code ch. 321

Municipal finances
V.T.C.A., Local Government Code chs. 101—108

Municipal sales and use tax for street maintenance
V.T.C.A., Tax Code ch. 327

Municipal hotel occupancy taxes
V.T.C.A., Tax Code ch. 351

Audit of municipal finances
V.T.C.A., Local Government Code ch. 103

Municipal budget
V.T.C.A., Local Government Code ch. 102

Depositories for municipal funds
V.T.C.A., Local Government Code ch. 105

Business Licenses and Regulations

Occupation taxes
V.T.C.A., Tax Code § 302.101

Exhibitions and shows government in type A general law municipality
V.T.C.A., Local Government Code § 215.032

Hawkers, peddlers and pawnbrokers in government in type A general law municipality
V.T.C.A., Local Government Code § 215.031

Motor vehicle dealers
V.T.C.A., Local Government Code § 215.002

Sexually oriented business
V.T.C.A., Local Government Code ch. 243

Municipal regulation of taxicabs
V.T.C.A., Local Government Code, § 215.004

Type A municipality may regulate cabdrivers and similar occupations
V.T.C.A., Local Government Code § 215.029

Local regulation of transportation network companies, preempted
V.T.C.A., Occupations Code § 2402.003

Local regulation of certain honey production operations, preempted
V.T.C.A., Health and Safety Code § 437.0197

Preemption of most municipal regulation of oil and gas operations
V.T.C.A., Natural Resources Code, § 81.0523

Prohibited adverse actions by government, protected membership in religious organizations
V.T.C.A., Government Code § 2400.001 et seq.

Sale of certain beverages by children
V.T.C.A., Local Government Code § 250.009

Animals

Animals at large in type A general law municipality
V.T.C.A., Local Government Code ch. 215.026

Animal drives in type A general law municipality
V.T.C.A., Local Government Code § 215.025

Breeding animals in type A general law municipality
V.T.C.A., Local Government Code § 215.027

Dogs
V.T.C.A., Health and Safety Code ch. 822

Preemption of certain municipal regulations concerning dogs in outdoor dining areas
V.T.C.A., Health & Safety Code, § 437.025

Rabies control
V.T.C.A., Health and Safety Code ch. 826

Health and Safety

Nuisances
V.T.C.A., Local Government Code ch. 217 and Health and Salary Code ch. 122

City attorney authority to see injunction to abate nuisance under alcoholic beverage code
V.T.C.A., Alcoholic Beverage Code § 101.70

Local regulation of sanitation
V.T.C.A., Health and Safety Code ch. 342

Burglar alarm systems
V.T.C.A., Local Government Code §. 214.191 et seq.

Fireworks in type A general law municipality
V.T.C.A., Local Government Code § 342.003

Limited authority to regulate firearms
V.T.C.A., Local Government Code § 229.001 et seq.

Type A municipality may regulate certain noises
V.T.C.A., Local Government Code § 217.003(d)

Public Peace, Morals and Welfare

Preemption of offenses
V.T.C.A., Penal Code § 1.08

Disorderly conduct in type A general law municipality
V.T.C.A., Local Government Code § 217.003

Weapons
V.T.C.A., Local Government Code § 229.001 et seq.

Housing discrimination
V.T.C.A., Local Government Code § 214.903

Juvenile Curfew
V.T.C.A., Local Government Code, §§ 341.905, 370.002;
V.T.C.A., Code of Criminal Procedure, Art. 45.059

Vehicles and Traffic

Vehicles and traffic
V.T.C.A., Transportation Code, title 7

Powers of local authorities
V.T.C.A., Transportation Code § 542.202 et seq.

Municipal authority relating to parking
V.T.C.A., Local Government Code ch. 601

Municipalities preempted from imposing franchise or regulating operation of automated motor vehicle or system
V.T.C.A., Transportation Code § 545.452

Streets, Sidewalks and Public Places

Acquisition
V.T.C.A., Local Government Code ch. 273

Parks and playgrounds
V.T.C.A., Local Government Code ch. 315

Powers of general-law municipality over streets
V.T.C.A., Transportation Code, §§ 311.002, 311.003

Public Services

Housing authorities
V.T.C.A., Local Government Code ch. 392

Recreational programs and facilities
V.T.C.A., Local Government Code ch. 332

Buildings and Construction

Generally
V.T.C.A., Local Government Code ch. 214

Certain municipal regulations regarding buildings, prohibited
V.T.C.A., Government Code § 3000.001 et seq

Signs
V.T.C.A., Local Government Code ch. 216

National Flood Insurance Program
V.T.C.A., Water Code §§ 16.3145, 16.315

Manufactured Housing

Regulation of certain types of housing and buildings, reservation of municipal authority
V.T.C.A., Occupations Code, § 1202.251

Regulation by municipality of mobile and manufactured housing
V.T.C.A., Occupations Code, § 1201.008

Municipalities prohibited from regulating some land used as manufactured home park
V.T.C.A., Local Government Code, § 214.906

Continuation of land use regarding manufactured home communities
V.T.C.A., Local Government Code, § 211.018

Subdivisions

General powers
V.T.C.A., Local Government Code ch. 212

Zoning

Powers Generally
V.T.C.A., Local Government Code ch. 211

Board of adjustment
V.T.C.A., Local Government Code § 211.008 et seq.

Ongoing commission
V.T.C.A., Local Government Code § 211.007 et seq.

Sign regulations
V.T.C.A., Local Government Code ch. 216

Regulation of political signs by municipality
V.T.C.A., Local Government Code § 216.903.

Utilities

Municipal utility systems, general powers
V.T.C.A., Local Government Code § 552.001 et seq.

Municipal power regarding sewers and privies
V.T.C.A., Health and Safety Code § 342.002

CROSS-REFERENCE TABLE

This table provides users with the legislative history and the current disposition of the sections in the prior El Paso City Code.

Thus, prior code Section 2-16 was derived from Ordinance 2089 § 1, 6-25-59, and currently appears in this code as Section 3.32.010.

Prior Code §	Ordinance History	Herein
1-1		1.04.010, 1.04.020
1-2		1.04.030
1-3		1.04.040
1-4		1.04.050
1-5		1.04.060
1-6		1.08.010—1.08.030
1-7		1.08.040
1-8	P.C. 1917 § 3	1.08.050
1-9	P.C. 1917 § 9	1.08.060
1-10		1.08.070
2-1	Ord. of 6-2-38 § 1	3.28.010, 3.28.020
2-2	Ord. of 6-2-38 § 2	3.28.030
2-3	Ord. of 12-21-44	2.04.030
2-3.1	Ord. 5542, 4-24-75	2.60.010
2-3.2	Ord. 6183, 3-7-78	2.04.010
2-3.2.1		2.04.020
2-3.3	Ord. 7401, 12-22-81	2.56.010—2.56.040
2-4	Ord. of 11-16-44; Ord. 1834, 1-30-58	2.52.010—2.52.110
2-4.1		2.40.010
2-4.2	Ord. 2103 8-6-59; Ord. 2142, 10-15-59	2.40.020
2-5	Ord. of 3-8-23 § 1; Ord. 1715, 5-2-57; Ord. 1751, 8-8-57; Ord. 2703 § 1, 6-28-62	2.08.010—2.08.050
2-6	Ord. of 3-8-23 § 5	2.08.060
2-7	Ord. of 3-8-23 § 3	2.08.070
2-8	Ord. of 3-8-23 § 4	2.08.080
2-9	Ord. of 3-8-23 § 6	2.08.090
2-10	Ord. of 3-8-23 § 7	2.08.100
2-11	Ord. of 3-8-23 § 8	2.08.110
2-12	Ord. of 3-8-23 § 9	2.08.120
2-13	Ord. of 3-8-23 § 10	2.08.130
2-14	Ord. of 3-8-23 § 11	2.08.140
2-15	Ord. of 3-8-23 § 12	2.08.150
2-16	Ord. 2089 § 1, 6-25-59	3.32.010
2-17	Ord. 2089 § 2, 6-25-59	3.32.020

2-18	Ord. 2089 § 3, 6-25-59; Ord. 4799 § 1, 3-9-72	3.32.030
2-19	Ord. 2089 § 4, 6-25-59; Ord. 6262, 6-27-78; Ord. 7262, 7-14-81	3.32.040
2-20	Ord. 2089 § 5, 6-25-59	3.32.050
2-21	Ord. 2089 § 6, 6-25-59; Ord. 4799 § 2, 3-9-72	3.32.060
2-22	Ord. 2089 § 7, 6-25-59	3.32.070
2-23	Ord. 2089 § 8, 6-25-59	3.32.080
2-24	Ord. 2089 § 9, 6-25-59	3.32.090
2-25	Ord. 2089 § 10, 6-25-59; Ord. 3269, 2-25-65; Ord. 7159, 3-24-81	3.32.100
2-26—2-30	Reserved	Not codified
2-31	Ord. 5610 § 3, 9-4-75	Repealed by 6626
2-32	Ord. 5610 § 4, 9-4-75	Repealed by 6626
2-33	Ord. 5610 § 5, 9-4-75	Repealed by 6626
2-34	Ord. 5610 § 6, 9-4-75	Repealed by 6626
2-35	Ord. 5610 § 7, 9-4-75	Repealed by 6626
2-36	Ord. 5610 § 8, 9-4-75	Repealed by 6626
2-37	Ord. 5610 § 9, 9-4-75	Repealed by 6626
2-38	Ord. 5610 § 10, 9-4-75	Repealed by 6626
3-1		14.04.010
3-2		14.04.020
3-3—3-6	Reserved	Not codified
3-7	Ord. 1473 § 3, 1-26-56	14.12.010
3-8	Ord. 1473 § 1, 1-26-56	14.12.020
3-9	Ord. 1473 § 2, 1-26-56	14.12.030
3-10		14.12.040
3-11		14.12.050
3-12		14.12.060
3-13		14.12.070
3-14		14.12.080
3-15		14.12.090
3-16		14.12.100
3-16.1		14.12.105
3-17		14.12.110
3-17.1	Ord. 2312 §§ 1—3, 8-11-60; Ord. 3641 § 1, 11-10-66	14.20.250
3-17.2	Ord. 5873, 11-11-76	14.16.110
3-18	Ord. 83 § 2, 11-18-48	14.08.010
3-19	Ord. 83 § 10, 11-18-48	14.08.110

3-20	Ord. 83 § 11, 11-18-48; Ord. 7451 § 1, 3-16-82	14.08.080
3-21	Ord. 83 § 3, 11-18-48; Ord. 7451, 3-16-82	14.08.020
3-22	Ord. 83 § 4, 11-18-48; Ord. 7451, 3-16-82	14.08.030
3-23	Ord. 83 § 5, 11-18-48	14.08.040
3-24	Ord. 83 § 6, 11-18-48	14.08.050
3-25	Ord. 83 § 7, 11-18-48	14.08.060
3-26	Ord. 83 § 8, 11-18-48	14.08.070
3-27	Ord. 83 § 9, 11-18-48	14.08.090
3-28	Ord. 83 § 12, 11-18-48	14.08.100
3-29	Ord. 83 § 13, 11-18-48	14.08.120
3-30	Ord. 83 § 14, 11-18-48	14.08.130
3-31—3-35	Reserved	Not codified
3-36	Ord. 2584 § 1, 12-21-61; Ord. 2918, 5-9-63; Ord. 3082, 4-9-64; Ord. 3571, 7-21-66; Ord. 3769, 6-22-67; Ord. 4599, 4-8-71	14.16.160
3-37	Ord. 2584 § 2, 12-21-61	14.16.170
3-38	Ord. 2584 § 3, 12-21-61	14.16.180
3-39	Ord. 3483, 3-17-66	14.16.010
3-40	Ord. 3483, 3-17-66	14.16.020
3-41	Ord. 3483, 3-17-66	14.16.030
3-42	Ord. 3483, 3-17-66	14.16.040
3-43	Ord. 3483, 3-17-66	14.16.050
3-44	Ord. 3483, 3-17-66	14.16.060
3-45	Ord. 3483, 3-17-66	14.16.070
3-46	Ord. 3483, 3-17-66	14.16.080
3-47	Ord. 3483, 3-17-66	14.16.090
3-48	Ord. 3483, 3-17-66	14.16.100
3-49	Ord. 3483, 3-17-66	14.16.120
3-50	Ord. 3483, 3-17-66	14.16.130
3-51	Ord. 3483, 3-17-66	14.16.140
3-52	Ord. 3483, 3-17-66; Ord. 4599, 4-8-71	14.20.240
3-53	Ord. 3483, 3-17-66	14.16.150
3-54	Ord. 3483, 3-17-66	14.20.010
3-55	Ord. 3483, 3-17-66	14.20.050
3-56	Ord. 3483, 3-17-66	14.20.020
3-57	Ord. 3483, 3-17-66	14.20.040
3-58	Ord. 3483, 3-17-66	14.20.080
3-59	Ord. 3483, 3-17-66	14.20.030
3-60	Ord. 3483, 3-17-66	14.20.070
3-61	Ord. 3483, 3-17-66	14.20.110
3-62	Ord. 3483, 3-17-66	14.20.090

3-63	Ord. 3483, 3-17-66	14.20.060
3-64	Ord. 3483, 3-17-66	14.20.100
3-65	Ord. 3483, 3-17-66	14.20.120
3-66	Ord. 3483, 3-17-66	14.20.130
3-67	Ord. 3483, 3-17-66	14.20.140
3-68	Ord. 3483, 3-17-66	14.20.150
3-69	Ord. 3483, 3-17-66	14.20.160
3-70	Ord. 3483, 3-17-66	14.20.170
3-71	Ord. 3483, 3-17-66	14.20.180
3-72	Ord. 3483, 3-17-66	14.12.120
3-73	Ord. 3483, 3-17-66	14.12.130
3-74	Ord. 3483, 3-17-66	14.12.140
3-75	Ord. 3483, 3-17-66	14.12.150
3-76	Ord. 3483, 3-17-66	14.12.160
3-77	Ord. 3483, 3-17-66	Repealed by 8808
3-78	Ord. 3483, 3-17-66	14.12.180
3-79	Ord. 3483, 3-17-66	14.12.190
3-80	Ord. 3483, 3-17-66	14.12.200
3-81	Ord. 3483, 3-17-66	14.12.210
3-82	Ord. 3483, 3-17-66	14.12.220
3-83		14.04.030, 14.04.040
3-84	Ord. 3483, 3-17-66	14.04.010
3-85		14.16.135
4-1	Ord. 2232, 3-10-60; Ord. 7732, 4-5-83	5.08.010
4-2	Ord. 2214, 2-11-60; Ord. 2928, 6-6-63; Ord. 4410, 5-28-70; Ord. 5398, 9-5-74; Ord. 7732, 4-5-83	5.08.020
4-3	Ord. of 11-28-40	5.08.030
4-4	Ord. of 12-17-35 § 1	5.08.040
4-5	Ord. of 12-17-35 § 2	5.08.050
4-6	Ord. of 12-17-35 § 3	5.08.060
4-7	Ord. 251 § 1, 9-29-49	5.08.070
4-8	Ord. 251 § 2, 9-29-49	5.08.080
4-9	Ord. 251 § 3, 9-29-49	5.08.090
4-10	Ord. of 4-30-40 § 1, Ord. 7832 § 1, 8-16-83	5.08.100
4-11	Ord. of 4-30-40 § 2, Ord. 7832 § 2, 8-16-83	5.08.110
4-12	Ord. 3447 §§ 1—3, 1-13-66	5.08.140
4-13	Ord. 4031, 8-1-68; Ord. 7732, 4-5-83	5.08.130
4-14	Ord. 7832 § 3, 8-16-83	5.08.120
5-1	Ord. 5485, 12-26-74; Ord. 7124 §§ 1—4, 2-17-81	~~7.04.010~~ Repealed by 16829

5-2	Ord. 5485, 12-26-74; Ord. 7124 § 5, 2-17-81	~~7.04.030~~
5-3	Ord. 5485, 12-26-74	~~7.04.080~~
5-4	Ord. 5485, 12-26-74	~~7.04.040~~
5-5	Ord. 5485, 12-26-74	~~7.04.050~~
5-6	Ord. 5485, 12-26-74	~~7.08.020~~
5-7	Ord. 5485, 12-26-74	~~7.12.010~~
5-8	Ord. 5485, 12-26-74	~~7.08.030~~
5-9	Ord. 5485, 12-26-74	~~7.16.010~~
5-10	Ord. 5485, 12-26-74	~~7.16.020~~
5-11	Ord. 5485, 12-26-74; Ord. 6815 §§ 1—3, 1-8-80	~~7.16.030~~
5-12	Ord. 5485, 12-26-74	~~7.08.040~~
5-13	Ord. 5485, 12-26-74	~~7.20.010~~
5-14	Ord. 5485, 12-26-74; Ord. 6815 § 1, 2, 1-8-80	~~7.20.020~~
5-15	Ord. 5485, 12-26-74	~~7.12.040~~
5-16	Ord. 5485, 12-26-74; Ord. 7001 § 1, 2, 8-26-80	~~7.12.020~~
5-17	Ord. 5485, 12-26-74; Ord. 7001 § 3, 8-26-80	~~7.12.030~~
5-18	Ord. 5485, 12-26-74	~~7.12.050~~
5-19	Ord. 5485, 12-26-74	~~7.08.010~~
5-20	Ord. 5485, 12-26-74; Ord. 6815 § 4, 5, 1-8-80	~~7.08.050~~
5-21	Ord. 5485, 12-26-74	~~7.08.060~~
5-22	Ord. 5485, 12-26-74; Ord. 6815 § 6, 7, 1-8-80	~~7.08.070~~
5-23	Ord. 5485, 12-26-74	~~7.08.080~~
5-24	Ord. 5485, 12-26-74	~~7.08.090~~
5-25	Ord. 5485, 12-26-74	~~7.08.100~~
5-26	Ord. 5485, 12-26-74; Ord. 6815 § 8, 1-840	~~7.08.110~~
5-27	Ord. 5485, 12-26-74	~~7.08.120~~
5-28	Ord. 5485, 12-26-74	~~7.08.130~~
5-29	Ord. 5485, 12-26-74	~~7.04.060~~
5-30	Ord. 5485, 12-26-74	~~7.08.140~~
5-31	Ord. 5485, 12-26-74	~~7.04.070~~
5-32	Ord. 5485, 12-26-74	~~7.04.020~~
5-33		~~7.08.150~~
6-1	Ord. of 8-12-48; Ord. 5942, 3-10-77	Repealed by 11904
6-2	Ord. of 8-12-48; Ord. 5942, 3-10-77; Ord. 7090, 12-30-80	Repealed by 11904
6-3	Ord. of 8-12-48; Ord 3222 § 1, 12-10-64 Ord. 4032 8-8-68; Ord. 4328, 12-18-69; Ord. 5765, 6-10-76	Repealed by 11904
6-4	Ord. 1080, 1-7-54; Ord. 5942, 3-10-77; Ord. 6598, 5-22-79; Ord. 7709 § 1, 3-8-83	Repealed by 11904
6-5	Ord. 7738, 4-19-83	Repealed by 15999
6-6	Reserved	Not codified
6-7	Ord. 1171 § 1, 4-29-54	Repealed by 15999
6-8	Ord. of 8-15-35 § 1	Repealed by 15999
6-9	Ord. of 8-15-35 § 3; Ord. 5292, 4-11-74	Repealed by 15999
6-10	Ord. of 8-15-35 § 4	Repealed by 15999

Repealed by 16229

6-11	Ord. of 8-15-35 § 5; Ord. 5292, 4-11-74	Repealed by 15999
6-12	Ord. of 8-15-35 § 6	Repealed by 15999
6-13	Ord. of 8-15-35 § 7	Repealed by 15999
6-14		18.08.010—18.08.361
6-15	Ord. 7430, 2-16-82	18.32.010
6-16	Reserved	Not codified
6-17		18.36.010—18.36.051
6-18—6-20	Reserved	Not codified
6-21		Repealed by 8904
6-22—6-47	Reserved	Not codified
6-48*		18.16.010
6-49*		18.16.020
6-50*		18.16.030—18.16.261 18.16.280—18.16.291 18.16.310—18.16.610
6-50.1*		18.16.620
6-50.2*		18.16.630
6-50.3*		18.16.640
6-50.4—6-50.8*		Not codified
6-50.9*		18.16.650
6-50.10*		18.16.660
6-50.11*		18.16.670
6-50.12*		18.16.680
6-50.13*		18.16.690
6-50. 14—6-50.22*		Not codified
6-50.23*		18.16.700
6-50.24*		18.16.710
6-50.25*		18.16.720
6-50.26—6-50.28*		Not codified
6-50.29*		18.16.730
6-50.30*		18.16.740
6-50.31 *		18.16.750
6-50.32*		18.16.760
6-50.33*		18.16.770
6-50.34*		18.16.780
6-50.35*		18.16.790
6-50.36*		18.16.800
6-50.37*		18.16.810

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6-50.38*	Not codified
6-50.39*	Not codified
6-50.40*	18.16.820
6-50.41*	18.16.830
6-50.42—6-50.45*	Not codified
6-50.46*	18.16.840
6-50.47*	18.16.850
6-50.48*	18.16.860
6-50.49*	18.16.870
6-50.50*	18.16.880
6-50.51*	18.16.890
6-50.52*	18.16.900
6-50.53*	18.16.910
6-50.54*	18.16.920
6-50.55*	18.16.930
6-50.56*	18.16.940
6-50.57*	18.16.950
6-50.58*	18.16.960
6-50.59*	18.16.970
6-50.60*	18.16.980
6-50.61*	18.16.990
6-50.62*	18.16.1000
6-50.63*	18.16.1010
6-50.64*	18.16.1020
6-50.65—6-50.67*	Not codified

*Editor's Note: Prior code Chapter 6 was amended in its entirety by Ord. 8346. Prior code Chapter 6 ordinance history: 6-48 (Ord. 7299, 8-25-81), 6-49 (Ord. 7299, 8-25-81), 6-50 (Ord. 7299, 8-25-81), 6-50.1 (Ord. 7299, 8-25-81), 6-50.2 (Ord. 7299, 8-25-81), 6-50.3 (Ord. 7299, 8-25-81), 6-50.4—6-50.8 (Reserved), 6-50.9 (Ord. 7299, 8-25-81), 6-50.10 (Ord. 7299, 8-25-81), 6-50.11 (Ord. 7299, 8-25-81), 6-50.12 (Ord. 7299, 8-25-81), 6-50.13 (Ord. 7299, 8-25-81), 6-50.14 (Ord. 7299, 8-25-81 and Ord. 7817 § 3, 8-2-83), 6-50.15 (Ord. 7299, 8-25-81), 6-50.16 (Ord. 7299, 8-25-81), 6-50.17 (Ord. 7299, 8-25-81), 6-50.18—6-50.22 (Reserved), 6-50.23 (Ord. 7299, 8-25-81), 6-50.24 (Ord. 7299, 8-25-81), 6-50.25 (Ord. 7299, 8-25-81), 6-50.26—6-50.28 (Reserved), 6-50.29 (Ord. 7299, 8-25-81 and Ord. 7751 § 1, 4-26-83), 6-50.30 (Ord. 7299, 8-25-81 and Ord. 7751 § 2, 4-26-83), 6-50.31 (Ord. 7299, 8-25-81 and Ord. 7751 §§ 3, 4, 4-26-83), 6-50.32 (Ord. 7299, 8-25-81), 6-50.33 (Ord. 7299, 8-25-81), 6-50.34 (Ord. 7299, 8-25-81), 6-50.35 (Ord. 7299, 8-25-81 and Ord. 7751 § 5, 4-26-83), 6-50.36 (Reserved), 6-50.37 (Ord. 7299, 8-25-81), 6-50.38 (Ord. 7299, 8-25-81), 6-50.39 (Ord. 7299, 8-25-81), 6-50.40 (Ord. 7299, 8-25-81), 6-50.41 (Ord. 7299, 8-25-81), 6-50.42—6-50.45 (Reserved), 6-50.46 (Ord. 7299, 8-25-81), 6-50.47 (Ord. 7299, 8-25-81), 6-50.48 (Ord. 7299, 8-25-81), 6-50.49 (Ord. 7299, 8-25-81), 6-50.50 (Ord. 7299, 8-25-81), 6-50.51 (Ord. 7299, 8-25-81), 6-50.52 (Ord. 7299, 8-25-81), 6-50.53 (Ord. 7299, 8-25-81), 6-50.54—6-50.57 (Reserved), 6-50.58 (Ord. 7299, 8-25-81 and Ord. 7889 § 1(1), (2), 10-11-83), 6-50.59 (Ord. 7299, 8-25-81 and Ord. 7889 § 1(3), 10-11-83), 6-50.60 (Ord. 7299, 8-25-81 and Ord. 7471, 5-4-82 and Ord. 7889 § 1(4), 10-11-83), 6-50.61 (Ord. 7299, 8-25-81 and Ord. 7889 § 1(5), 10-11-83), 6-50.62 (Ord. 7889 § 6, 10-11-83), 6-50.63 (Ord. 7299, 8-25-81).

6-51	Ord. 2160 § 2, 11-19-59	Repealed by 13920
6-52	Ord. 2160 § 1, 11-19-59	Repealed by 13920
6-53	Ord. 2160 § 3, 11-19-59	Repealed by 13920
6-54	Ord. 2160 § 4, 11-19-59	Repealed by 13920
6-55	Ord. 2160 § 5, 11-19-59	Repealed by 13920
6-56	Ord. 2160 § 6, 11-19-59	Repealed by 13920
6-57	Ord. 2160 § 9, 11-19-59	18.48.010

6-58	Ord. 2160 § 7, 11-19-59	18.48.020
6-59	Ord. 2160 § 8, 11-19-59	18.48.030
6-59.1	Ord. 2160 § 10, 11-19-59	18.48.040
6-60		Chapter 18.20
6-61		Chapter 18.20
6-62		Chapter 18.20
6-63		Chapter 18.20
6-64—6-74		Not codified
6-75		Chapter 18.24
6-76		Chapter 18.24
6-77		Chapter 18.24
6-78		Chapter 18.24
6-79—6-131	Reserved	Not codified
6-131.1	Ord. 6933 § 1, 6-10-80; Ord. 7388, 12-1-81	5.16.010
6-131.2	Ord. 6933 § 2, 6-10-80	5.16.030
6-131.3	Ord. 6933 § 3, 6-10-80	5.16.020
6-131.4	Ord. 6933 § 4, 6-10-80	5.16.040
6-131.5	Ord. 6933 §§ 5—7, 6-10-80	5.16.050
6-131.6	Ord. 6933 § 8, 6-10-80	5.16.090
6-131.7	Ord. 6933 § 9, 6-10-80	5.16.100
6-131.8	Ord. 6933 § 10, 6-10-80	5.16.080
6-131.9	Ord. 6933 § 11, 6-10-80	5.16.060
6-131.10	Ord. 6933 §§ 12—14, 6-10-80	5.16.070
6-131.11	Ord. 6933 § 15, 6-10-80	5.16.110
6-132	Ord. 6340, 10-17-78	Repealed by 11905
6-133	Ord. 6340, 10-17-78	Repealed by 11905
6-134	Ord. 6340, 10-17-78	Repealed by 11905
6-135	Ord. 6340, 10-17-78	Repealed by 11905
6A-1	Ord. 2360 § 1, 11-10-60	2.48.010
6A-2	Ord. 2360 § 2, 11-10-60	2.48.020—2.48.050
6A-3	Ord. 2360 § 3, 11-10-60	2.48.060
6A-4	Ord. 2360 § 4, 11-10-60	2.48.070
6A-5	Ord. 2360 § 5, 11-10-60	2.48.080
6A-6	Ord. 2360 § 6, 11-10-60	2.48.090
6A-7	Ord. 2360 § 7, 11-10-60	2.48.100
6A-8	Ord. 2360 § 8, 11-10-60	2.48.110
6A-9	Ord. 2360 § 9, 11-10-60	2.48.120
7-1	Ord. 7878, 9-27-83	2.44.010
7-2	Ord. 7878, 9-27-83	2.44.020
7-3	Ord. 7878, 9-27-83	2.44.030
7-4	Ord. 7878, 9-27-83	2.44.040
7-5	Ord. 7878, 9-27-83	2.44.050
7-6	Ord. 7878, 9-27-83	2.44.060

7-7	Ord. 7878, 9-27-83	2.44.070
7-8		2.44.080
7A-1	Ord. 4323 § 1, 12-18-69; Ord. 4729 § 1, 11-24-71	2.12.010
7A-2	Ord. 4323 § 5, 12-18-69; Ord. 4729 § 2, 11-24-71	2.12.020—2.12.050
7A-3	Ord. 4323 § 4, 12-18-69	2.12.060
7A-4	Ord. 4323 § 6, 12-18-69	2.12.070
7A-5	Ord. 4323 § 2, 12-18-69, Ord. 4729 § 3, 11-24-71	2.12.080
7A-6	Ord. 4323 § 3, 12-18-69; Ord. 6119, 12-1-77	2.12.090
7A-7—7A-10	Reserved	Not codified
7A-11	Ord. 6083 § 1, 9-29-77	Chapter 17.20
7A-12	Ord. 6083 § 1, 9-29-77	Chapter 17.20
7A-13	Ord. 6083 § 1, 9-29-77	Chapter 17.20
7A-14	Ord. 6083 § 1, 9-29-77	Chapter 17.20
7A-15	Ord. 6083 § 1, 9-29-77	Chapter 17.20
7A-16	Ord. 6083 § 1, 9-29-77	Chapter 17.20
7A-17	Ord. 6083 § 1, 9-29-77	Chapter 17.20
7A-18	Ord. 6083 § 1, 9-29-77	Chapter 17.20
7A-19	Ord. 6083 § 1, 9-29-77	Chapter 17.20
7A-20	Ord. 6083 § 1, 9-29-77	Chapter 17.20
7A-21	Ord. 6083 § 1, 9-29-77	Chapter 17.20
7A-22	Ord. 6083 § 1, 9-29-77	Chapter 17.20
7A-23	Ord. 6083 § 1, 9-29-77	Chapter 17.20
7A-24	Ord. 6083 § 1, 9-29-77	Chapter 17.20
7A-25	Ord. 6083 § 1, 9-29-77	Chapter 17.20
7A-26	Ord. 6083 § 1, 9-29-77	Not codified
8-1	Ord. 703, 2-28-52; Ord. 7352, 10-13-81	3.36.010
8-1.1	Ord. 7053, 11-18-80; Ord. 7353, 10-13-81	3.36.020
8-2	Ord. 868, 12-11-52; Ord. 4198, 5-1-69; Ord. 6745, 10-9-79; Ord, 7342, 10-6-81; Ord. 7432, 2-23-82; Ord. 7805, 6-30-83	Repealed by 14544
8-3	Ord. of 4-19-46 §§ 1, 2	Repealed by 14544
8-4	Ord. of 7-29-38 §§ 1, 2	Repealed by 14544
8-5	Ord. of 7-23-31 § 1	3.04.080
8-6	Ord. 4997, 2-8-73; Ord. 5764, 6-10-76; Ord. 6465, 2-6-79; Ord. 7047, 11-12-80; Ord. 7108 § 1, 1-20-81	3.04.040
8-7	Ord. 6308, 8-29-78	3.08.010
8-8	Ord. 7312, 9-1-81	3.24.010
8-9	Reserved	Not codified
8-10	Ord. 7350, 10-13-81; Ord. 7792, 6-21-83	3.04.050
8-11	Ord. 7350, 10-13-81; Ord. 7792, 6-21-83	Repealed by 16014
8-12	Ord. 7350, 10-13-81	3.04.070
8-13—8-20	Reserved	Not codified
8-21	Ord. 7094 Div. A, 12-30-80	3.16.010
8-22	Ord. 7094 Div. B, §§ 1—4, 12-30-80	3.16.020, 3.16.030
8-23	Ord. 7094 Div. C, 12-30-80	3.16.040

8-24	Ord. 7094 Div. D, 12-30-80	3.16.050
8-25	Ord. 7094 Div. E, 12-30-80	3.16.060
8-26	Ord. 7094 Div. F, §§ 1—10, 12-30-80	3.16.070—3.16.160
8-27	Ord. 7094 Div. G, 12-30-80	Not codified
8-28	Ord. 7094 Div. H, 12-30-80	Not codified
8-29	Ord. 7548 § 1, 8-10-82; Ord. 7908, 11-1-83	3.16.170—3.16.260
9-1	Ord. 7969 (part), 1-24-83	9.52.010—9.52.090, 9.52.120
9-2	Ord. 7969 (part), 1-24-83	9.52.100
9-3	Ord. 7969 (part), 1-24-83	9.52.110
9-4	Ord. 7969 (part), 1-24-83	Repealed by 11702
9-5	Ord. 7969 (part), 1-24-83	Repealed by 11702
9-6	Ord. 7969 (part), 1-24-83	Repealed by 11702
9-7	Ord. 7969 (part), 1-24-83	Repealed by 11702
9-8	Ord. 7969 (part), 1-24-83	Repealed by 11702
9-9	Ord. 7969 (part), 1-24-83	Repealed by 11702
9-10	Ord. 7969 (part), 1-24-83	9.60.010
9-11	Ord. 7969 (part), 1-24-83	9.60.020
9-12	Ord. 7969 (part), 1-24-83	9.60.030
9-13	Ord. 7969 (part), 1-24-83	9.64.010
9-14	Ord. 7969 (part), 1-24-83	9.64.020
9-15	Ord. 7969 (part), 1-24-83	9 64 030
9-16	Ord. 7969 (part), 1-24-83	9.64.040
9-17	Ord. 7969 (part), 1-24-83	9 64 050
9-18	Ord. 7969 (part), 1-24-83	9.64.060
9-19	Ord. 7969 (part), 1-24-83	9.68.010, 9.68.020
9-20	Ord. 7969 (part), 1-24-83	9.68.030—9 68 050
9-21	Ord. 7969 (part), 1-24-83	9.68.060—9.68.130

9-22	Ord. 7969 (part), 1-24-83	9.68.220
9-23	Ord. 7969 (part), 1-24-83	9.68.150
9-24	Ord. 7969 (part), 1-24-83	9.68.160
9-25	Ord. 7969 (part), 1-24-83	9.68.170
9-26	Ord. 7969 (part), 1-24-83	9.68.180
9-27	Ord. 7969 (part), 1-24-83	9.68.190—9.68.210
9-28	Ord. 7969 (part), 1-24-83	9.68.140
9-29	Ord. 7969 (part), 1-24-83	9.72.010
9-30	Ord. 7969 (part), 1-24-83	9.72.040
9-31	Ord. 7969 (part), 1-24-83	9.72.030
9-32	Ord. 7969 (part), 1-24-83	9.72.020
9-33	Ord. 7969 (part), 1-24-83	9.72.050
9-34	Ord. 7969 (part), 1-24-83	9.72.060
9-35	Ord. 7969 (part), 1-24-83	9.76.010
9-36	Ord. 7969 (part), 1-24-83	9.76.020
9-37	Ord. 7969 (part), 1-24-83	9.76.030
9-38	Ord. 7969 (part), 1-24-83	9.76.040
9-39	Ord. 7969 (part), 1-24-83	9.76.060
9-40	Ord. 7969 (part), 1-24-83	9.76.050
9-41	Ord. 7969 (part), 1-24-83	9.76.070
9-42		9.76.080
9-43		9.78.010—9.78.030
10-1	Ord. 7884, 10-4-83	9.12.010
10-2	Ord. 7884, 10-4-83	9.12.820—9.12.870
10-3	Ord. 7884, 10-4-83	9.12.880
10-4	Ord. 7884, 10-4-83	9.12.020—9.12.060
10-5	Ord. 7884, 10-4-83	9.12.070
10-6	Ord. 7884, 10-4-83	9.12.080
10-7	Ord. 7884, 10-4-83	9.12.090
10-8	Ord. 7884, 10-4-83	9.12.100
10-9	Ord. 7884, 10-4-83	9.12.110
10-10	Ord. 7884, 10-4-83	9.12.120
10-11	Ord. 7884, 10-4-83	9.12.130—9.12.210
10-12	Ord. 7884, 10-4-83	9.12.220—9.12.250
10-13	Ord. 7884, 10-4-83	9.12.290—9.12.400
10-14	Ord. 7884, 10-4-83	Repealed by 14602
10-15	Ord. 7884, 10-4-83	9.12.410—9.12.460
10-16	Ord. 7884, 10-4-83	Repealed by 14602
10-17	Ord. 7884, 10-4-83	9.12.560—9.12.640
10-18	Ord. 7884, 10-4-83	Repealed by 14602
10-19	Ord. 7884, 10-4-83	9.12.780
10-20	Ord. 7884, 10-4-83	9.12.790
10-21	Ord. 7884, 10-4-83	9.12.800
10-22	Ord. 7884, 10-4-83	9.12.810

10-23	Ord. 7884, 10-4-83	9.12.890
10-24	Ord. 7884, 10-4-83	Not codified
11-1*		9.04.010
11-2*		9.04.020
11-3*		9.04.030
11-4*		9.04.040
11-5*		9.04.050
11-6*		9.04.060
11-7*		9.04.070
11-8*		9.04.080
11-9*		9.04.090
11-10*		9.04.100
11-11*		9.04.110
11-12*		9.04.120
11-13*		9.04.130
11-14*		9.04.140
11-15*		9.04.150
11-16*		9.04.160
11-17*		9.04.170
11-18*		9.04.180
11-19*		9.04.190
11-20*		9.04.200
11-21*		9.04.210
11-22*		9.04.220
11-23*		9.04.230
11-24*		9.04.240
11-25*		9.04.250
11-26*		9.04.260
11-27*		9.04.270
11-28*		9.04.280
11-29*		9.04.290
11-30*		9.04.300
11-31*		9.04.310
11-32*		9.04.320
11-33*		9.04.330
11-34*		9.04.340
11-35*		9.04.350
11-36*		9.04.360
11-37*		9.04.370
11-38*		9.04.380
11-39*		9.04.390
11-40*		Not codified
11-41*		9.04.400
11-42*		9.04.410

11-43*	9.04.420
11-44*	9.04.430
11-45*	9.04.440
11-46*	9.08.010
11-47*	9.08.020
11-48*	9.08.030
11-49*	9.08.040
11-50*	9.08.050
11-51*	9.08.060
11-52*	9.08.070
11-53*	Not codified

*Editor's Note: Prior code Chapter 11 was amended in its entirety by Ord. 8652. Prior code Chapter 11 ordinance history: 11-1 (Ord. 1596 § 1, 8-16-56; Ord. 6381 § 1, 12-5-78), 11-2 (Ord. 1596 § 2, 8-16-56), 11-3 (Ord. 1596 § 3, 8-16-56; Ord. 3063 § 1, 2-27-64; Ord. 3580, 7-28-66; Ord. 4466 § 1, 8-27-70; Ord. 6381 § 2, 12-5-78; Ord. 7081, 12-23-80), 11-4 (Ord. 1596 § 4, 8-16-56; Ord. 6604 § 1, 5-29-79), 11-4.1 (Ord. 6604 § 1, 5-29-79), 11-4.2 (Ord. 6604 § 1, 5-29-79; Ord. 7952 § 1, 12-20-83), 11-4.3 (Ord. 6604 § 1, 5-29-79), 11-5 (Ord. 1596 § 13, 8-16-56; Ord. 7074, 12-16-80; Ord. 7080, 12-23-80), 11-6 (Ord. 1596 § 8, 8-16-56; Ord. 3063 §§ 2, 3, 2-27-64; Ord. 4466 § 2, 8-27-70; Ord. 4758, 1-13-72; Ord. 6067, 9-15-77; Ord. 6125, 12-1-77; Ord. 6381 § 3, 12-5-78; Ord. 6708, 9-11-79; Ord. 6722 §§ 1, 2, 9-18-81; Ord. 7172, 3-31-81; Ord. 7308, 9-1-81; Ord. 7309, 9-1-81; Ord. 7952 § 2, 12-20-83), 11-7 (Ord. 1596 § 9, 8-16-56; Ord. 4466 § 3, 8-27-70; Ord. 6281 § 4, 12-5-78), 11-8 (Ord. 1596 § 10, 8-16-56; Ord. 4466 § 4, 8-27-70; Ord. 4759, 1-13-72; Ord. 6064, 9-15-77; Ord. 6381 § 5, 12-5-78; Ord. 6604 § 2, 5-29-79; Ord. 6707, 9-11-79; Ord. 7311, 9-1-81; Ord. 7952, 12-20-83), 11-9 (Ord. 1596 § 12, 8-16-56; Ord. 6604 § 3, 5-29-79), 11-10 (Ord. 1596 § 11, 8-16-56; Ord. 3063 § 4, 2-27-64), 11-11 (Ord. 1596 § 11(a), 8-16-56; Ord. 3063 § 5, 2-27-64; Ord. 6381 § 6, 12-5-78; Ord. 6679, 8-14-78; Ord. 7082, 12-23-80; Ord. 7952 § 4, 12-20-83), 11-12 (Ord. 1596 § 11(B), 8-16-56; Ord. 3063 § 6, 2-27-64; Ord. 5402, 9-12-74; Ord. 5426, 10-10-74; Ord. 6381 § 1, 12-5-78; Ord. 6679, 8-14-79), 11-13 (Ord. 1596 § 11(e), 8-16-56), 11-14 (Ord. 1596 § 11(c), 8-16-56; Ord. 3063 § 7, 2-27-64; Ord. 6381 § 8, 12-5-78), 11-15 (Ord. 1596 § 11(d), 8-16-56; Ord. 3063 § 8, 2-27-64; Ord. 5694, 4-15-76; Ord. 5975, 4-14-77; Ord. 6381 § 9, 12-5-78; Ord. 6604 § 4, 5-29-79; Ord. 7703, 3-1-83), 11-16 (Reserved), 11-17 (Ord. 1596 § 6, 8-16-56; Ord. 3063 § 9, 2-27-64; Ord. 6381 § 11, 12-5-78; Ord. 7083, 12-23-80), 11-18 (Ord. 1596 § 7, 8-16-56; Ord. 3063 § 10, 2-27-64), 11-19 (Ord. 1596 § 14, 8-16-56; Ord. 3063 § 11, 2-27-64; Ord. 6381 § 12, 12-5-78; Ord. 6604 § 6, 5-29-79; Ord. 6679, 8-14-79; Ord. 6992, 8-12-80), 11-19.1 (Ord. 2333, 10-6-60; Ord. 4115, 12-19-68; Ord. 6604 § 5, 5-29-79; Ord. 7084, 12-23-80), 11-20 (Ord. 1596 § 15, 8-16-56), 11-20.1 (Ord. 6604 § 7, 5-29-79; Ord. 7478, 4-13-82), 11-20.2 (Ord. 7310, 9-1-81; Ord. 7501, 5-25-82), 11-21 (Ord. 7497, 5-25-82), 11-22 (Ord. 7497, 5-25-82), 11-23 (Ord. 7497, 5-25-82), 11-23.1 (Ord. 7497, 5-25-82), 11-23.2 (Ord. 7497, 5-25-82), 11-23.3 (Ord. 7497, 5-25-82), 11-23.4 (Ord. 7497, 5-25-82), 11-23.5 (Ord. 7497, 5-25-82), 11-24 (Ord. 7344, 10-6-81), 11-25 (Ord. 7344, 10-6-81), 11-26 (Ord. 7344, 10-6-81; Ord. 7408 § 1, 12-29-81), 11-27 (Ord. 7344, 10-6-81; Ord. 7408 § 2, 12-29-81), 11-28 (Ord. 7344, 10-6-81), 11-29 (Ord. 7344, 10-6-81), 11-30 (Ord. 7498, 5-18-82), 11-31 (Ord. 7498, 5-18-82), 11-32 (Ord. 7498, 5-18-82), 11-33 (Ord. 7498, 5-18-82), 11-34 (Ord. 7498, 5-18-82; Ord. 7817 § 9, 8-2-83), 11-35 (Ord. 7498, 5-18-82), 11-36 (Ord. 7498, 5-18-82), 11-37 (Ord. 7498, 5-18-82); as amended by Ords. 8443, 8460, 8522.

11A-1	Ord. 4816 § 1, 4-6-72; Ord. 5758 § 1, 7-8-77; Ord. 7597, 9-7-82	18.44.030, 18.44.040
11A-1.1	Ord. 5758 § 2, 7-8-77; Ord. 7597, 9-7-82	18.44.020
11A-2	Ord. 4816 § 2, 4-6-72; Ord. 5522, 3-27-75; Ord. 7597, 9-7-82	18.44.210
11A-3	Ord. 4816 § 3, 4-6-72; Ord. 7597, 9-7-82	18.44.190
11A-4	Ord. 4816 § 4, 4-6-72; Ord. 5758 § 3, 7-8-77; Ord. 7597, 9-7-82	18.44.200
11A-5	Ord. 4816 § 5, 4-6-72; Ord. 7597, 9-7-82	18.44.050
11A-6	Ord. 4816 § 6, 4-6-72; Ord. 7597, 9-7-82	18.44.060
11A-7	Ord. 4816 § 7, 4-6-72; Ord. 5758 § 4, 7-8-77; Ord. 7597, 9-7-82	18.44.070
11A-8	Ord. 4816 § 8, 4-6-72; Ord. 7597, 9-7-82	18.44.080
11A-9	Ord. 4816 § 9, 4-6-72; Ord. 7597, 9-7-82	18.44.090
11A-10	Ord. 4816 § 10, 4-6-72; Ord. 7597, 9-7-82	18.44.100

11A-10.1	Ord. 5758 § 5, 7-8-77; Ord. 7597, 9-7-82	18.44.110
11A-11	Ord. 4816 § 11, 4-6-72; Ord. 5758, 7-8-77; Ord. 7597, 9-7-82	18.44.120
11A-12	Ord. 4816 § 12, 4-6-72; Ord. 7597, 9-7-82	18.44.130
11A-13	Ord. 4816 § 14, 4-6-72; Ord. 7597, 9-7-82	18.44.140
11A-14		18.44.160
11A-15	Ord. 4816 § 15, 4-6-72; Ord. 7597, 9-7-82	18.44.150
11A-16	Ord. 4816 § 17, 4-6-72; Ord. 7597, 9-7-82	18.44.010
11A-16.1	Ord. 5758 § 8, 7-8-77; Ord. 7656, 12-28-82	18.44.180
11A-17	Ord. 4816 § 18, 4-6-72; Ord. 7597, 9-7-82	18.44.220
11A-18		18.44.170
12-1	Ord. 602, 7-12-51	Not codified
12-2	Ord. 1453 § 3, 12-22-55; Ord. 3228 § 3, 12-17-64; Ord. 7245, 6-16-81	Not codified
12-2.1	Ord. 2739, 8-16-62; Ord. 3228 § 4, 12-17-64	Not codified
12-3	P.C. 1917 § 316	Not codified
12-4	P.C. 1917 § 317	Not codified
12-5	P.C. 1917 § 318	Not codified
12-6	Ord. 1588, 7-26-56	9.84.010

12-7	Reserved	Not codified
12-8	Ord. of 4-2-31 § 1	9.84.020
12-9	P.C. 1917 § 323	9.84.030
12-10	Ord. of 11-7-18 §§ 1, 2	Not codified
12-11	Ord. of 4-23-42 § 1	Not codified
12-12	Ord. of 4-23-42 § 2	Not codified
12-13	Ord. of 4-23-42 § 3	Not codified
12-14	Ord. of 4-23-42 § 4	Not codified
12-15	Ord. of 4-23-42 § 5	Not codified
12-16	Ord. of 8-30-23 § 1	Not codified
12-17	Ord. of 8-30-23 § 2	Not codified
12-18	Ord. of 8-30-23 § 3	Not codified
12-18.1	Ord. 2494 § 1, 8-17-61; Ord. 2521, 9-28-61	Not codified
12-18.2	Ord. 2494 § 2, 8-17-61	Not codified
12-18.3	Ord. 2494 § 3, 8-17-61	Not codified
12-18.4	Ord. 2494 § 5, 8-17-61	Not codified
12-18.5	Ord. 2494 § 6, 8-17-61	Not codified
12-19	Ord. of 6-34-32 § 1; Ord. of 9-29-21; Ord. of 11-13-47	5.48.010, 5.48.180
12-20	Ord. of 6-23-21 § 2; Ord. of 2-15-34	5.48.020
12-21	Ord. of 6-23-21 § 3; Ord. 355, 4-6-50	5.48.030
12-22	Ord. of 6-23-21 § 4	5.48.040
12-23	Ord. of 6-23-21 § 5	5.48.050
12-24	Ord. of 6-23-21 § 6	5.48.060
12-25	Ord. of 6-23-21 § 7	5.48.070
12-26	Ord. of 6-23-21 § 8	5.48.080—5.48.100
12-27	Ord. of 6-23-21 § 9	5.48.110
12-28	Ord. of 6-23-21 § 10	5.48.120
12-29	Ord. of 6-23-21 § 11	5.48.130
12-30	Ord. of 6-23-21 § 13	5.48.140
12-31	Ord. of 6-23-21 § 14	5.48.150
12-32	Ord. of 6-23-21 § 14	5.48.160
12-33	Ord. of 6-23-21 § 16	5.48.170
12-34	Ord. of 6-23-21 § 17	5.48.190
12-35	Ord. 3482 § 1, 3-17-66	Repealed by 16656
12-36	Ord. 3482 § 2, 3-17-66	Repealed by 16656
12-37	Ord. 3482 § 3, 3-17-66	Repealed by 16656
12-37.1	Ord. 3620 § 1, 9-15-66	Repealed by 16656
12-38	Ord. 3482 § 4, 3-17-66	Repealed by 16656
12-39	Ord. 3482 § 5, 3-17-66	Repealed by 16656
12-40	Ord. 3482 § 6, 3-17-66	Repealed by 16656
12-41	Ord. 3482 § 7, 3-17-66	Repealed by 16656
12-41.1	Ord. 6060 §§ 1—9, 9-8-77	Repealed by 16656
12-42	Ord. of 4-13-22 § 4; Ord. 7817 § 10, 8-2-83	9.24.040
12-43	Ord. of 4-13-22 § 2	9.24.020
12-44	Ord. of 4-13-22 § 1; Ord. 7169 § 1, 3-31-81	9.24.010

12-45	Ord. of 4-13-22 § 3; Ord. 7169 §§ 2—4, 3-31-81	9.24.030
12-46	Ord. of 4-13-22 § 5	9.24.050
12-47	P.C. 1917 § 1038; Ord. 3270, 2-25-65	9.16.010
12-48	P.C. 1917 § 321	9.16.020
12-49	Reserved	Not codified
12-50	Reserved	Not codified
12-51	P.C. 1917 § 1039	9.16.040
12-52	P.C. 1917 § 1041	9.16.030
12-53	Ord. of 10-31-46 § 1	9.28.010
12-54	Ord. of 10-31-46 § 2	9.28.020
12-55	Ord. of 10-31-46 § 3; Ord. 7817 § 11, 8-2-83	9.28.080
12-56	Ord. of 10-31-46 § 4	9.28.030
12-57	Ord. of 10-31-46 § 5	9.28.040
12-58	Ord. of 10-31-46 § 6	9.28.070
12-59	Ord. of 10-31-46 § 7	9.28.050
12-60	Ord. of 10-31-46 § 8	9.28.060
12-61	Ord. of 10-31-46 § 9	9.28.090
12-62	Ord. 385 § 1, 5-11-50	Repealed by 15714
12-63	Ord. 385 § 2, 5-11-50	Repealed by 15714
12-64	Ord. 385 § 3, 5-11-50	Repealed by 15714
12-65	Ord. 385 § 4, 5-11-50	Repealed by 15714
12-66	Ord. 385 § 5, 5-11-50	Repealed by 15714
12-67	Ord. 385 § 11, 5-11-50	Repealed by 15714
12-68	Ord. 385 § 12, 5-11-50	Repealed by 15714
12-69	Ord. 385 § 6, 5-11-50	Repealed by 15714
12-70	Ord. 385 § 7, 5-11-50	Repealed by 15714
12-71	Ord. 385 § 8, 5-11-50	Repealed by 15714
12-72	Ord. 385 § 9, 5-11-50	Repealed by 15714
12-73	Ord. 385 § 10, 5-11-50	Repealed by 15714
12-74	Ord. 3919 § 1, 2-29-68	Repealed by 15946
12-75	Ord. 3919 § 1, 2-29-68	Repealed by 15946
12-76	Ord. 3919 § 1, 2-29-68	Repealed by 15946
12-77	Ord. 3919 § 1, 2-29-68	Repealed by 15946
12-78	Ord. 3919 § 1, 2-29-68	Repealed by 15946
12-79	Ord. 3919 § 1, 2-29-68	Repealed by 15946
12-80	Ord. 3919 § 1, 2-29-68	Repealed by 15946
12-81	Ord. 3919 § 1, 2-29-68	Repealed by 15946
12-82	Ord. 3919 § 1, 2-29-68	Repealed by 15946
12-83	Ord. 3919 § 1, 2-29-68	Repealed by 15946

Prior Code §	Ordinance History	Herein
12-84	Ord. 3919 § 1, 2-29-68	Repealed by 15946
12-85	Ord. 3919 § 1, 2-29-68	Repealed by 15946
12-86	Ord. 3919 § 1, 2-29-68	Repealed by 15946
12-87	Ord. 3919 § 1, 2-29-68	Repealed by 15946
12-88	Ord. 3919 § 1, 2-29-68; Ord. 7817 § 12, 8-2-83	Repealed by 15946
12-89	Ord. 4537 § 1, 12-24-70	9.36,010
12-90	Ord. 4537 § 1, 12-24-70	9.36.020
12-9 1	Ord. 4537 § 1, 12-24-70	9.36.030
12-92	Ord. 4537 § 1, 12-24-70	9.36.040
12-93	Ord. 4537 § 1, 12-24-70	9.36.050
12-94	Ord. 4537 § 1, 12-24-70	9.36.060
12-95	Ord. 4537 § 1, 12-24-70	9.36.080
12-96	Ord. 4537 § 1, 12-24-70	9.36.070
12-97	Ord. 4537 § 1, 12-24-70; Ord. 6703 § 1, 2, 9-4-79; Ord. 7817 § 13, 8-2-83	9.36.090
12-98—12-105	Reserved	Not codified
12-106	Ord. 7170, 3-31-81	9.40.010
12-107	Ord. 7170, 3-31-81	9.40.020
12-108	Ord. 7170, 3-31-81	9.40.130
12-109	Ord. 7170, 3-31-8 1	9.40.030
12-110	Ord. 7170, 3-31-81	9.40.040
12-111	Ord. 7170, 3-31-81	9.40.050
12-112	Ord. 7170, 3-31-81	9.40.060
12-1 13	Ord. 7170, 3-31-81	9.40.120
12-114	Ord. 7170, 3-31-81	9.40.070
12-115	Ord. 7170, 3-31-8 1	9.40.080
12-116	Ord. 7170, 3-31-8 1	9.40.090
12-117	Ord. 7170, 3-31-81	9.40.100
12-118	Ord. 7170, 3-31-81	9.40.110
12-119	Ord. 7170, 3-31-81	9.40.140
12-120	Ord. 7170, 3-31-81	Not codified
12-121—12-130	Reserved	Not codified
12-13 1	Ord. 7247 § 1, 6-16-8 1	9.44.0 10
12-132	Ord. 7247 § 2,6-16-81; Ord. 7902 § 1—3, 10-25-83	9.44.020—9.44.070
12-133	Ord. 7247 § 3,6-16-81	9.44.080, 9.44.090, 9.44.110—9.44. 150
12-134	Ord. 7247 § 4, 6-16-81;Ord. 7410, 12-29-81	9.44.160
12-135	Ord. 7247 § 5,6-16-81	9.44.170—9.44.250
12-136	Ord. 7247 § 6, 6-16-81	9.44.280, 9.44.290
12-137	Ord 7247 § 7, 6-16-8 1	9.44.300

Prior Code §	Ordinance History	Herein
12-138	Ord. 7247 § 8, 6-16-8 1	9.44.270
12-139	Ord. 7247 § 9, 6-16-81; Ord. 7814 § 14, 8-2-83	9.44.3 10
12-140	Ord. 7247 § 10, 6-16-8 1	9.44.260
12-141	Ord. 7247 § 11, 6-16-81; Ord. 7410, 12-29-81	9.44.100
12-142	Ord. 7247 § 12, 6-16-8 1	Not codified
12-143	Ord. 7247 § 13, 6-16-81; Ord. 7392, 12-15-81	9.44.320
12-144	Ord. 7380, 11-17-81	9.48.010
12-145	Ord. 7380, 11-17-81	9.48.020—9.48.060
12-146	Ord. 7380, 11-17-81	9.48.070
12-147	Ord. 7380, 11-17-81	9.48.080
12-148	Ord. 7380, 11-17-81	9.48.090
12-149	Ord.7380, 11-17-81;Ord.781715,8-2-83	9.48.400
12-150	Ord. 7380, 11-17-81	9.48.100—9.48.220
12-151	Ord. 7380, 11-17-81	9.48.240—9.48.390
12-152	Ord. 7380, 11-17-81	9.48.230
12-153	Ord. 7380, 11-17-81	9.48.410
12-154	Ord. 7380, 11-17-81	9.48.420
12-155	Ord. 7380, 11-17-81	Not codified
13-1	Ord. 574 § 2, 5-10-51; Ord. 1385, 7-7-55; Ord. 2987 § 1, 9-12-63	2.24.010—2.24.040
13-2	Ord. of 1-10-46 § 1; Ord. 574 § 1, 5-10-51; Ord. 1067 § 1, 12-17-53; Ord. 1185 § 1, 6-24-54; Ord. 1186 § 1, 5-12-54	17.08.010
13-3	Ord. 574 § 3, 5-10-51; Ord. 2939 § 1, 6-27-63	Repealed by 8593
13-4	Ord. 574 § 4, 5-10-51	Repealed by 8593
13-5	Ord. 574 § 5, 5-10-51; Ord. 616, 8-23-5 1; Ord. 2082, 6-1 1-59; Ord. 939 § 2, 6-27-63	Repealed by 8593
13-5.1	Ord. 2987 § 2, 9-12-63	Repealed by 8593
13-6	Ord. 574 § 6, 5-10-51; Ord. 1144, 4-14-54	Repealed by 8593
13-6.1	Ord. 2939 § 3, 6-27-63	Repealed by 8593
13-6.2		Repealed by 8593
13-7	Ord. 574 § 7, 5-10-51	Repealed by 8593
13-8	Ord. 574 § 8, 5-10-5 1	Repealed by 8593
13-9	Ord. 1185 § 2, 3(i), 6-24-54	17.08.120
13-10	Ord. 11854, 6-24-54	17.08.130
13-11	Ord. 1185 § 3(a)—(h), 6-24-54	17.08.140

13-12	Ord. 1185 § 5, 6-24-54	17.08.150
13-13	Ord. of 1-10-46 § 1	Repealed by 10975
13-14	Ord. of 1-10-46 § 2	Repealed by 10975
13-15	Ord. of 1-10-46 § 3	Repealed by 16806
13-16	Ord. of 1-10-46 § 4	Repealed by 16806
13-17	Ord. of 1-10-46 § 5	Repealed by 10975
13-18	Ord. of 1-10-46 § 6; Ord. 7817 § 16, 8-2-83	Repealed by 10975
13-19	Ord. 1067 §§ 2, 3(h), 12-17-53	17.08.220
13-20	Ord. 1067 § 4, 12-17-53; Ord. 1186 § 4, 5-13-54	17.08.230
13-21	Ord. 1067 § 3(a)—(g), 12-17-53; Ord. 1186 §§ 2, 3, 5-13-54	17.08.240
13-22	Ord. 1067 § 5, 12-17-53; Ord. 1186 § 5, 5-13-54	17.08.250
13-23	Ord. 1518 § 15, 5-3-56; Ord. 2954 § 1, 7-18-63	17.12.010
13-24	Ord. 1518 § 1, 5-3-56	17.12.020
13-25	Ord. 1518 § 2, 5-3-56	17.12.030
13-26	Ord. 1518 § 3, 5-3-56	17.12.040
13-27	Ord. 1518 § 4, 5-3-56	17.12.050
13-28	Ord. 1518 § 5, 5-3-56	17.12.060
13-29	Ord. 1518 § 6, 5-3-56	17.12.070
13-30	Ord. 1518 § 7, 5-3-56	17.12.080
13-31	Ord. 1518 § 8, 5-3-56	17.12.090
13-32	Reserved	Not codified
13-33	Ord. 1518 § 10, 5-3-56	17.12.100
13-34	Ord. 1518 § 11, 5-3-56; Ord. 4489, 10-22-70	17.12.110
13-35	Ord. 1518 § 12, 5-3-56	17.12.130
13-36	Ord. 1518 § 13, 5-3-56; Ord. 2954 § 2, 7-18-63	17.12.120
13-37	Ord. 2856, 2-7-63; Ord. 2954 § 3, 7-18-63	17.12.140
13-38	Ord. 2954 § 4, 7-18-63	17.12.150
13-39—13-48	Reserved	Not codified
13-49	Ord. 7920 § 1, 11-15-83	17.04.010—17.04.090, 17.04.120
13-50	Reserved	Not codified
13-51	Ord. 4181, 3-27-69; Ord. 4187, 4-10-69; Ord. 4304, 11-13-69; Ord. 4518, 11-25-70; Ord. 5439, 10-31-74; Ord. 6044, 8-25-77	17.16.010
13-52	Ord. 4184, 3-27-69; Ord. 5441 § 2, 10-31-74; Ord. 6054, 9-1-77; Ord. 6973, 7-22-83	17.16.020
13-53	Ord. 4184, 3-27-69; Ord. 5441 § 3, 10-31-74	17.16.040
13-54	Ord. 4184, 3-27-69	17.16.030
13-55	Ord. 4184, 3-27-69	17.16.060
13-56	Reserved	Not codified
13-57	Ord. 4184, 3-27-69	Repealed by 16806
13A-1	Ord. 2753 § 1, 10-18-62	5.44.010, 5.44.250
13A-2	Ord. 2753 § 2, 10-18-62	5.44.020
13A-3	Ord. 2753 § 3, 10-18-62; Ord. 3803, 8-17-67	5.44.040, 5.44.050

13A-4	Ord. 2753 § 4, 10-18-62; Ord. 2817, 12-27-62	5.44.060
13A-5	Ord. 2753 § 5, 10-18-62	5.44.030
13A-6	Ord. 2753 § 6, 10-18-62	5.44.070
13A-7	Ord. 2753 § 7, 10-18-62	5.44.080—5.44.240
13A-8	Ord. 2753 § 8, 10-18-62; Ord. 7062, 12-2-80	5.44.260
13A-9	Ord. 2753 § 9, 10-18-62	5.44.270
14-1	Ord. 1128 § 1, 3-11-54	Not codified
14-2	Ord. 1128 § 2, 3-11-54	Not codified
14-3	Ord. 1128 § 4, 3-11-54	Not codified
14-4	Ord. 1128 § 3, 3-11-54	Not codified
14-5	Ord. 1955 § G, 10-2-58	5.04.010
14-6	Ord. of 9-1-31 § 1-A	5.04.020
14-7	Ord. of 9-1-31 § 2	5.04.030
14-8	Ord. of 9-1-31 § 3	5.04.050
14-9	P.C. 1917 § 103	5.04.070
14-10	Ord. 1731 §§ 1—3, 6-7-57	5.04.060
14-10.1	Ord. 2505 § 1, 9-7-61	5.04.040
14-10.2	Ord. 3766, 6-15-67	5.04.080
14-11	Ord. of 5-28-26 § 1	5.20.010
14-12	Ord. of 5-28-26 § 3	5.20.020
14-13	Ord. of 5-28-26 § 4	5.20.030
14-14	Ord. of 5-28-26 § 5	5.20.070
14-15	Ord. 373 § 1, 4-8-48; Ord. 378, 10-14-48	5.20.040
14-16	Ord. 373 § 2, 4-8-48	5.20.050
14-17	Ord. 373 § 3, 4-8-48	5.20.060
14-18	Ord. 6710, 9-11-79; Ord. 7610 §§ 1, 2, 10-12-82	5.100.010
14-19	Ord. 6710, 9-11-79	5.100.020
14-20	Ord. 6710, 9-11-79; Ord. 6908, 5-6-80; Ord. 7610 § 3, 10-12-82	5.100.040, 5.100.060, 5.100.090
14-20.1	Ord. 7136, 2-24-81	5.100.070
14-21	Ord. 6710, 9-11-79	5.100.030

14-22	Ord. 6710, 9-11-79	5.100.050
14-23	Ord. 6710, 9-11-79	5.100.080
14-24	Ord. 6710, 9-11-79	5.100.100
14-25—14-41	Reserved	Not codified
14-42	Ord. 5900, 1-6-77; Ord. 6017 § 1, 7-7-77	5.24.010
14-43	Ord. 5900, 1-6-77; Ord. 6086 § 1, 10-6-77	5.24.020—5.24.040
14-44	Ord. 5900, 1-6-77; Ord. 6712, 9-11-79	5.24.050
14-45	Ord. 5900, 1-6-77; Ord. 6017 § 2, 7-7-77	5.24.060
14-45.1	Ord. 7752 § 1, 4-26-83	5.24.070
14-46	Ord. 5900, 1-6-77	5.24.080
14-47	Ord. 5900, 1-6-77; Ord. 7616 §§ 1, 2, 10-5-82	5.24.090
14-48	Ord. 5900, 1-6-77	5.24.120
14-48.1	Ord. 7752 § 2, 4-26-83	5.24.170
14-49	Ord. 5900, 1-6-77; Ord. 6086 § 2, 10-6-77	5.24.130
14-50	Ord. 5900, 1-6-77	5.24.140
14-51	Ord. 5900, 1-6-77	5.24.150
14-52	Ord. 5900, 1-6-77; Ord. 6086 § 3, 10-6-77	5.24.160
14-53	Ord. 5900, 1-6-77; Ord. 7752 § 3, 4-26-83	5.24.110
14-53.1	Ord. 7752 § 3, 4-26-83	5.24.100
14-54	Ord. 5900, 1-6-77	5.24.180
14-55	Ord. 5900, 1-6-77	5.24.210
14-56	Ord. 5900, 1-6-77	5.24.200
14-56.1	Ord. 5900, 1-6-77	5.24.190
14-57—14-72	Reserved	Not codified
14-72.1	Ord. 5897, 12-16-76	5.12.010
14-72.2	Ord. 5897, 12-16-76	5.12.020
14-72.3	Ord. 5897, 12-16-76	5.12.030
14-72.4	Ord. 5897, 12-16-76	5.12.040
14-72.5	Ord. 5897, 12-16-76	5.12.050
14-72.6	Ord. 5897, 12-16-76	5.12.060
14-72.7	Ord. 5897, 12-16-76	5.12.070
14-72.8	Ord. 5897, 12-16-76	5.12.080
14-72.9	Ord. 5897, 12-16-76	5.12.090
14-72.10	Ord. 5897, 12-16-76; Ord. 6634, 6-26-79	5.12.100
14-72.11	Ord. 5897, 12-16-76	5.12.110
14-72.12	Ord. 5897, 12-16-76; Ord. 6215, 4-18-78	5.12.120
14-72.13	Ord. 5897, 12-16-76	5.12.130
14-72.14	Ord. 5897, 12-16-76	5.12.140
14-72.15—14-72.17	Reserved	Not codified
14-72.18	Ord. 5968, 5-12-77	Repealed by 12165
14-72.19	Ord. 5968, 5-12-77	Repealed by 12165
14-72.20	Ord. 5968, 5-12-77	Repealed by 12165
14-72.21	Ord. 5968, 5-12-77	Repealed by 12165

14-73—14-76	Reserved	Not codified
14-77	Ord. 1393 § 3, 7-14-55	5.28.010
14-78	Ord. 1393 § 1, 7-14-55	5.28.030
14-79	Ord. 1393 § 2, 7-14-55	5.28.040
14-80	P.C. 1917 § 1054	5.28.020
14-81	Ord. of 12-29-32 § 1; Ord. 5048 § 2, 4-12-73; Ord. 6472 § 1, 2-20-79	5.36.010
14-82	Ord. of 12-29-32 § 3	5.36.020
14-83	Ord. of 12-29-32 § 3	5.36.040
14-84	Ord. of 12-29-32 § 4; Ord. 5048 § 3, 4-12-73	5.36.030
14-85	Ord. of 12-29-32 § 5	5.36.050
14-86	Ord. of 12-29-32 § 6; Ord. 368 § 1, 4-27-60; Ord. 6472 § 2, 2-20-79	5.36.060
14-87	Ord. of 12-29-32 § 7; Ord. 368 § 2, 4-27-60	5.36.070, 5.36.080
14-88	Ord. of 12-29-32 § 8; Ord. 5048 § 4, 4-12-73	5.36.090
14-89	Ord. 393 § 12, 5-18-50	5.40.010
14-90	Ord. 393 § 1, 5-18-50	5.40.020
14-91	Ord. 393 § 2, 5-18-50	5.40.040
14-92	Ord. 393 § 3, 5-18-50	5.40.030
14-93	Ord. 393 § 4, 5-18-50	5.40.050
14-94	Ord. 393 § 5, 5-18-50	5.40.060
14-95	Ord. 393 § 11, 5-18-50	5.40.070
14-96	Ord. 393 § 6, 5-18-50	5.40.080
14-97	Ord. 393 § 7, 5-18-50	5.40.090
14-98	Ord. 393 § 8, 5-18-50	5.40.100
14-99	Ord. 393 § 9, 5-18-50	5.40.110
14-100	Ord. 393 § 10, 5-18-50; Ord. 7817 § 17, 8-2-83	5.40.120
14-101	Ord. of 2-26-42 § 2; Ord. 5559, 5-22-75	5.40.130
14-102	Ord. of 2-26-42 § 3; Ord. 5559, 5-22-75	5.40.140
14-103	Ord. of 2-26-42 § 4	5.40.150
14-104	Ord. 1936 § 1, 9-4-58	5.80.010
14-105	Ord. 1936 § 2, 9-4-58	5.80.030
14-106	Ord. 1936 § 3, 9-4-58	5.80.040
14-107	Ord. 1936 § 4, 9-4-58	5.80.060
14-108	Ord. 1936 § 5, 9-4-58	5.80.070
14-109	Ord. 1936 § 6, 9-4-58	5.80.080
14-110	Ord. 1936 § 7, 9-4-58	5.80.090
14-111	Ord. 1936 § 8, 9-4-58	5.80.020

14-112	Ord. 1936 § 9, 9-4-58	5.80.100
14-113	Ord. 1936 § 10, 9-4-58	5.80.050
14-114	Ord. 1936 § 11, 9-4-58	5.80.110
14-115	P.C. 1917 §§ 976, 977, 978, 984	5.56.010, 5.56.020, 5.56.070
14-116	P.C. 1917 § 979	5.56.030
14-117	P.C. 1917 § 981	5.56.040
14-118	P.C. 1917 § 982	5.56.050
14-119	P.C. 1917 § 983	5.56.060
14-120—14-133	Reserved	Not codified
14-134	Ord. of 4-12-32 § 1; Ord. of 5-23-32 § 1	5.68.010, 5.68.020
14-135	Ord. of 4-12-32 § 2	5.68.030
14-136	Ord. of 4-12-32 § 4	5.68.040
14-137	Ord. of 4-12-32 § 5; Ord. of 5-23-32; Ord. of 6-23-32; Ord. of 8-24-32; Ord. of 3-7-40 § 2	5.68.060
14-138	Ord. of 4-12-32 § 3	5.68.070
14-139	Ord. of 4-12-32 § 7	5.68.080, 5.68.090
14-140	Ord. of 4-12-32 § 8	5.68.100
14-141	Ord. of 4-12-32 § 6; Ord. of 5-23-32; Ord. of 6-23-32; Ord. of 8-24-32; Ord. of 3-7-40 § 3; Ord. of 9-19-40 § 1	5.68.050
14-142	Ord. of 4-12-32 § 7; Ord. of 5-23-32; Ord. of 6-23-32; Ord. of 8-24-32; Ord. of 3-7-40 § 5	5.68.110
14-143	Ord. of 4-12-32 § 9	5.68.120
14-144	Ord. of 4-12-32 § 6(b); Ord. of 5-23-32; Ord. of 6-23-32 § 1(b); Ord. of 8-24-32; Ord. of 3-7-40 § 4	5.68.130
14-145	Ord. of 4-12-32 § 2; Ord. of 5-23-32; Ord. of 6-23-32; Ord. of 8-24-32; Ord. of 3-7-40	5.68.140
14-145.1—		
14-145.6	Reserved	Not codified
14-145.7	Ord. 2871 § 1, 2-28-63	5.72.010
14-145.8	Ord. 2871 § 2, 2-28-63	5.72.020
14-145.9	Ord. 2871 § 3, 2-28-63	5.72.030
14-145.10	Ord. 2871 § 4, 2-28-63	5.72.040
14-145.11	Ord. 4057, 9-19-68	5.72.050
14-145.12—		
14-145.13	Reserved	Not codified
14-145.14	Ord. 2871 § 8, 2-28-63	5.72.060
14-145.15	Ord. 2871 § 9, 2-28-63	5.72.070
14-145.16	Reserved	Not codified
14-145.17	Ord. 2871 § 11, 2-28-63	5.72.080
14-145.18	Ord. 2871 § 12, 2-28-63	5.72.090

14-145.19	Ord. 2871 § 13, 2-28-63	5.72.100
14-145.20	Ord. 2871 § 14, 2-28-63	5.72.110
14-145.21	Ord. 2871 § 15, 2-28-63	5.72.120
14-145.22—		
14-145.26	Reserved	Not codified
14-145.27	Ord. 2794 § 1, 2-21-63	5.76.010
14-145.28	Ord. 2794 § 2, 2-21-63	5.76.020
14-145.29	Ord. 2794 § 3, 2-21-63	5.76.030
14-145.30	Ord. 2794 § 4, 2-21-63	5.76.060
14-145.31	Ord. 2794 § 5, 2-21-63	5.76.070
14-145.32	Ord. 2794 § 6, 2-21-63	5.76.040
14-145.33	Ord. 2794 § 5, 2-21-63	5.76.050
14-145.34	Ord. 2794 § 6, 2-21-63	5.76.080
14-146	Ord. of 3-6-47 § 1	5.88.010
14-147	Ord. of 3-6-47 § 2	5.88.020
14-148	Ord. of 3-6-47 § 3	5.88.030
14-149	Ord. of 3-6-47 § 4	5.88.040
14-150	Ord. of 3-6-47 § 5	5.88.050
14-150.1	Ord. 3166, 9-3-64	5.88.060
14-151	Ord. of 3-6-47 § 6	5.88.070
14-152	Ord. of 3-6-47 § 7	5.88.080
14-153	Ord. of 3-6-47 § 8	5.88.090
14-154	Ord. of 3-6-47 § 9	5.88.100
14-154.1	Ord. 2485 § 1, 7-20-61	5.108.010
14-154.2	Ord. 2485 § 2, 7-20-61	5.108.020
14-154.3	Ord. 2485 § 3, 7-20-61	5.108.030
14-154.4	Ord. 2485 § 6, 7-20-61	5.108.040
14-154.5	Ord. 2485 § 4, 7-20-61	5.108.050
14-154.6	Ord. 2485 § 5, 7-20-61	5.108.060
14-154.7	Ord. 2485 § 7, 7-20-61	5.108.070
14-155	Ord. of 9-9-43 § 1	5.92.010
14-156	Ord. of 9-9-43 § 2	5.92.020, 5.92.030
14-157	Ord. of 9-9-43 § 3	5.92.040
14-158	Ord. of 9-9-43 § 4	5.92.050
14-159	Ord. of 9-9-43 § 5	5.92.060
14-160	Ord. of 7-11-46 § 1	5.104.010
14-161	Ord. of 7-11-46 § 2; Ord. of 3-13-47 § 1	5.104.020
14-162	Ord. of 7-11-46 § 3; Ord. of 3-13-47 § 1	5.104.030, 5.104.040
14-163	Ord. of 7-11-46 § 4; Ord. of 3-13-47 § 2	5.104.050
14-164	Ord. of 7-11-46 § 4(a); Ord. of 3-13-47 § 3	5.104.060
14-165	Ord. of 7-11-46 § 4(b); Ord. of 3-13-47 § 3	5.104.070
14-165.1	Ord. 3166, 9-3-64	5.104.080

14-166	Ord. of 7-11-46 § 5	5.104.090
14-167	Ord. of 7-11-46 § 6	5.104.100
14-168	Ord. of 7-11-46 § 7	5.104.110
14A-1	Ord. 4099, 11-14-68	3.12.010
14A-2	Ord. 4099, 11-14-68; Ord. 6053, 9-1-77; Ord. 7862, 9-13-83	3.12.020
14A-3	Ord. 4099, 11-14-68	3.12.030
14A-4	Ord. 4099, 11-14-68	3.12.040
14A-5	Ord. 4099, 11-14-68; Ord. 7817 § 18, 8-2-83	3.12.050
14A-6	Ord. 4099, 11-14-68	3.12.070
14A-7	Ord. 4099, 11-14-68; Ord. 6053, 9-1-77; Ord. 6109, 11-2-77; Ord. 6678, 8-14-79	3.12.060
14A-8		3.12.080
15-1		1.16.010
15-2	Ord. of 3-14-35 § 1	Repealed by 9047
15-2.1	Ord. 2698 §§ 1—4, 6-21-62	10.16.010—10.16.050
15-3	Ord. of 11-2-33 § 1	10.04.010
15-4	Ord. of 6-2-22 § 5	10.16.070
15-5	Ord. of 6-2-22 § 6	10.16.080
15-6	Ord. 10-30-45 § 5; Ord. 1319, 2-24-55	10.12.010
15-7	P.C. 1917 § 885	10.08.010
15-7.1	Ord. of 4-2-31	10.24.010
15-8	P.C. 1917 § 1029	10.04.020
15-9	Ord. of 12-20-45 §§ 1—4	10.04.030
15-10	P.C. 1917 § 24	10.16.090
15-11	P.C. 1917 § 46	10.16.100
15-12	P.C. 1917 § 919	10.12.020
15-13	Ord. of 10-29-45 § 1	10.12.030
15-14	Ord. of 5-19-41 § 2	10.12.040
15-15	Ord. of 11-11-43 § 1	10.20.010
15-16	Ord. of 11-11-43 § 4	10.20.020
15-17	Ord. of 11-11-43 § 2	10.20.030
15-18	Ord. of 11-11-43 § 3	10.20.040
15-19	Ord. of 11-11-43 § 5	10.20.050
15-20	Ord. 2664 §§ 1—3, 5-3-62; Ord. 3402, 11-4-65; Ord. 4814, 3-303-72	10.20.060
15-21—15-24	Reserved	Not codified
15-24.1	Reserved	Not codified
15-25	Ord. 4580 § 1, 3-25-71	13.32.010—13.32.060
15-26	Ord. 4580 § 1, 3-25-71	13.28.010—10.28.060
15-27	Reserved	Not codified
15-28	Ord. of 7-15-43 § 1	10.16.110
15-29	P.C. 1917 § 548	10.08.020

15-29.1	Ord. 2238, 3-24-60	10.24.020
15-29.2	Ord. 2472 §§ 1,2, 6-15-61	10.24.030
15-30	P.C. 1917 §§ 1027,1028; Ord. 3933, 3-14-68	10.04.040
15-31	Ord. 6211, 4-11-78	10.04.050
15-32	P.C. 1917 § 47	Not codified
15-33	P.C. 1917 § 866	10.08.030
15-34	Ord. of 12-21-44	10.04.060
15-35	Ord. 8057, 22-84	Not codified
15-36		10.08.060
15-36.1	Ord. 2492, 8-10-64	10.08.040
15-36.2	Ord. 4018, 7-25-68	10.08.050
15-37	Ord. 49 §§ 1—3, 8-5-48	9.84.040
15-38	Ord. 6157, 1-31-78; Ord. 7135, 3-5-81; Ord. 7549 §§ 1—8, 7-27-82; Ord. 7665, 1-18-83	5.84.010—5.84.220
15-38.1	Ord. 7135, 3-5-81	5.84.230—5.84.250
15-39	Ord. 6693, 8-2-79	5.60.010—5.60.040
15-40	Ord. 7623, 11-9-82	Repealed by 14306
15-41	Ord. 7817 § 19, 8-2-83	1.12.010, 1.12.020
16-1	Ord. of 11-26-37 § 1; Ord. 1720, 5-16-52; Ord. 2660, 4-19-62; Ord. 3532, 5-26-66; Ord. 7021 § 1, 10-14-80; Ord. 7672, 1-25-83; Ord. 7791, 6-14-83	2.20.010—2.20.050, 2.20.110
16-2	Ord. of 11-26-37 § 2; Ord. 7671, 1-25-83	2.20.060
16-3	Ord. of 11-26-37 § 3	2.20.070
16-4	Ord. of 11-26-37 § 4	2.20.080
16-5	Ord. of 11-26-37 § 5	2.20.100
16-6	Ord. of 3-17-32 § 2; Ord. 7021 § 2, 10-14-80	2.20.090
16-7	Ord. 1837 § 1, 1-30-58; Ord. of 1-8-59; Ord. 2090, 7-2-59; Ord. 2094, 9-16-59; Ord. 2257, 4-28-60; Ord. 3005 § 2, 10-17-63; Ord. 3356 § I, 8-19-65	Repealed by 10145
16-8	Reserved	Not codified
16-9	Ord. 1837 § 3, 1-30-58; Ord. 3005 § 2, 10-17-63; Ord. 3356 § III, 8-19-65	Repealed by 10145
16-10	Ord. 1837 § 4, 1-30-58; Ord. 3005 § 2, 10-17-63	Repealed by 10145
16-11	Ord. 1837 § 6, 1-30-58; Ord. 3005 § 2, 10-17-63	Repealed by 10145

16-12	Ord. 1837 § 5, 1-30-58; Ord. 3005 § 2, 10-17-63	Repealed by 10145
16-12.1	Ord. 2348 §§ 1—6, 10-27-60; Ord. 3005 § 2, 10-17-63	Repealed by 10145
16-13	Ord. 7303, 10-6-81	Repealed by 10145
16-14	Ord. of 7-31-47 § 1	13.24.010
16-15	Ord. of 7-31-47 § 2	13.24.020
16-16	Ord. of 7-31-47 § 3	13.24.030
16-17	Ord. 2259 §§ 1—4, 4-28-60; Ord. 4286 § 1, 10-16-69; Ord. 5930 § 1, 2-24-77; Ord. 6832, 2-5-80; Ord. 7531, 6-22-82; Ord. 7907, 11-1-83	13.24.040
16-17.1	Reserved	Not codified
16-18	Ord. 2921 §§ 1—4, 5-16-63	13.24.050
16-19	Ord. 4286 § 2, 10-16-69	13.24.060
16-20	Ord. 4286 § 2, 10-16-69	13.24.070
16-21	Ord. 4286 § 2, 10-16-69	13.24.080
16-22	Ord. 4286 § 2, 10-16-69	13.24.090
16-23	Ord. 4286 § 2, 10-16-69	13.24.100
16-24	Ord. 4439, 7-23-70	13.24.110
16-25	Ord. 6602, 5-29-79; Ord. 6805, 1-3-80; Ord. 7495, 5-11-82	13.24.120—13.24.160, 13.24.180
16-25.1	Ord. 6736, 10-3-79	13.24.190
17-1	Ord. of 10-19-44 § 1	2.64.010
17-2	Ord. of 10-19-44 § 3(i) ; Ord. of 3-15-45; Ord. 835, 10-30-52; Ord. 2713, 7-5-62; Ord. 4616, 4-29-71; Ord. 4752 § 24, 12-30-71; Ord. 4813, 3-30-72; Ord. 5284, 4-11-74; Ord. 549, 11-23-75	2.64.020—2.64.080, 2.64.100, 2.64.110
17-3	Ord. of 10-19-44 § 2; Ord. 750, 5-1-52; Ord. 2501 § 1, 8-24-61; Ord. 2780, 11-1-62; Ord. 3121, 6-18-64; Ord. 4269, 9-25-69; Ord. 4569; Ord. 4841, 5-4-72; Ord. 5214 § 1, 12-12-73; Ord. 5317, 5-2-74; Ord. 6062, 9-15-77; Ord. 6554, 4-10-79; Ord. 6691, 8-28-79; Ord. 6961, 7-15-80; Ord. 7020, 9-30-80; Ord. 7091, 12-30-80; Ord. 7686, 2-15-83	2.64.120
17-4	Ord. of 10-19-44 § 17; Ord. of 6-20-46; Ord. 1843, 2-13-58; Ord. 7093, 12-30-80	2.64.130
17-4.1	Ord. 4015, 7-25-68; Ord. 6236, 5-23-78; Ord. 7020, 9-30-80	2.64.140
17-4.2	Ord. 4104, 11-27-68; Ord. 4269, § 2, 9-25-69; Ord. 6690, 8-28-79	2.64.150
17-4.3	Ord. 4269 § 3, 9-25-69; Ord. 4491, 1-7-71; Ord. 7180, 4-7-81	Repealed by 16076
17-4.4	Ord. 7117, 2-3-81	2.64.170

17-5	Ord. of 10-19-44 § 4; Ord. of 3-15-45; Ord. 2960, 7-25-63; Ord. 3529, 5-19-66; Ord. 4161, 3-13-69; Ord. 4980, 12-21-72	2.64.180
17-6	Ord. 2501 § 2, 8-24-61; Ord. 4107 § 1, 12-5-68; Ord. 6062, 9-15-77; Ord. 6451 § 1, 1-23-79	2.64.190
17-7	Ord. of 10-19-44 § 6; Ord. 3286 § 1, 3-18-65; Ord. 4107 § 2, 12-5-68; Ord. 4123, 1-9-69; Ord. 4752 §§ 1—5, 12-30-71; Ord. 5214 § 2, 12-13-73; Ord. 6062, 9-15-77; Ord. 6132, 12-8-77; Ord. 6882, 4-8-80; Ord. 7073, 12-16-80; Ord. 7664, 1-18-83	2.64.200
17-8	Ord. of 10-19-44 § 7; Ord. 3533, 5-26-66; Ord. 4752 § 22, 12-30-71; Ord. 6764, 11-13-79	2.64.210
17-9	Ord. of 10-19-44 § 8; Ord. 1323, 2-24-55; Ord. 2018, 2-5-59; Ord. 2394, 1-5-61; Ord. 2501 § 3, 8-24-61; Ord. 3314 § 1, 5-13-65; Ord. 3501, 4-14-66; Ord. 3709 § 1, 3-9-67; Ord. 4752 §§ 12—15, 23, 12-30-71	2.64.220
17-10	Reserved	Not codified
17-11	Ord. of 10-19-44 § 9; Ord. of 2-21-46; Ord. 1238, 10-21-54; Ord. 2613 §§ 1—3, 2-8-62; Ord. 3314 § 3, 5-13-65; Ord. 3395 § 1, 10-21-65; Ord. 3709 § 2, 3-9-67; Ord. 4004, 7-3-68; Ord. 4752 §§ 16—20, 25, 12-30-71; Ord. 5214 § 3, 12-13-73; Ord. 5828 § 1, 9-16-76; Ord. 6882, 4-8-80	2.64.230
17-11.1	Ord. 3286 § 2, 3-18-65; Ord. 4107 § 3, 12-5-68; Ord. 4752 §§ 6—11, 12-30-71; Ord. 6882, 4-8-80	2.64.240
17-12	Ord. of 10-19-44 § 10; Ord. of 3-7-46; Ord. 1016 § 1, 7-30-53; Ord. 3314 § 2, 5-13-65; Ord. 3395 § 2, 10-21-65; Ord. 3709 § 3, 3-9-67; Ord. 4107 § 4, 12-5-68; Ord. 4752 § 21, 12-30-71; Ord. 5828 § 2, 9-16-76; Ord. 6764, 11-13-79; Ord. 7943 § 1, 12-13-83	2.64.250

17-12.1	Reserved	Not codified
17-13	Ord. of 10-19-44 § 11; Ord. 6304, 8-22-78; Ord. 6458, 2-6-79; Ord. 6764, 11-13-79; Ord. 7020, 9-30-80	2.64.260
17-14	Ord. of 10-19-44 § 12	2.64.270
17-15	Ord. of 10-19-44 § 13; Ord. 2117, 9-3-59	2.64.280
17-16	Ord. of 10-19-44 § 14	2.64.090
17-17	Ord. of 10-19-44 § 15	2.64.290
17-18		2.64.300
18-1	P.C. 1917 § 861	13.36.010
18-2	P.C. 1917 § 863	13.36.020
18-3	P.C. 1917 § 864	13.36.030
18-4	P.C. 1917 § 759	13.36.040
18-5	P.C. 1917 § 760	13.36.050
18-6		13.36.060
18A-1	Ord. 6526, 3-27-79; Ord. 6533, 4-3-79	3.20.010—3.20.080
19-1	P.C. 1917 § 876	13.20.010
19-2	P.C. 1917 § 847	13.20.020
19-3	P.C. 1917 § 912	13.20.030
19-4	P.C. 1917 § 914	Not codified
19-5	P.C. 1917 § 917	13.20.090
19-6	P.C. 1917 § 911	13.20.040
19-7	P.C. 1917 §§ 921, 922	Repealed by 14841
19-8	P.C. 1917 § 915	13.20.060
19-9	P.C. 1917 § 897	13.20.070
19-10	P.C. 1917 §§ 898, 901	13.20.080
19-10.1	Ord. 6831, 2-5-80	13.16.010—13.16.030
19-11	Ord. 858 §§ 1—3, 11-20-52	13.04.080
19-12	Ord. 412, 6-22-50; Ord. 3686, 1-26-67	13.04.030
19-13	Ord. 4158 § 1, 3-13-69; Ord. 4220 § 1, 6-26-69	13.04.010
19-13.1	Ord. 2486 § 1, 8-3-61; Ord. 4158 § 2, 3-13-69; Ord. 4220 § 2, 6-26-69	Repealed by 16518
19-13.2	Ord. 2486 §§ 2, 3, 8-3-61; Ord. 4158 § 2, 3-13-69; Ord. 4220 § 2, 6-26-69; Ord. 4618, 5-13-71	13.04.020
19-14		13.04.060
19-14.1	Ord. 2574 §§ 1—4, 11-30-61; Ord. 4430, 7-9-70	13.04.050
19-14.2	Ord. 2953 § 27-18-62; Ord. 4158 § 3, 3-13-69; Ord. 4220 § 3, 6-26-69	13.04.070
19-15	Ord. 1533 § 1, 5-10-56	13.08.010

19-16	Ord. 1533 § 2, 5-10-56; Ord. 4174 § 1, 3-27-69	13.08.020
19-17	Ord. 1533 § 3, 5-10-56; Ord. 1567, 6-14-56; Ord. 4174 § 2, 3-27-69; Ord. 5399 § 1, 9-12-74; Ord. 6078 § 1, 9-22-77; Ord. 7737, 4-12-83	13.08.030
19-18	Ord. 1533 § 10, 5-10-56	13.08.040
19-19	Ord. 1533 § 4, 5-10-56; Ord. 4174 § 3, 3-27-69	13.08.050
19-20	Ord. 1533, 5-10-56	13.08.060
19-21	Ord. 1533 § 6, 5-10-56; Ord. 4174 § 4, 3-27-69	13.08.070—13.08.130
19-22	Ord. 1533 § 7, 5-10-56; Ord. 1894, 5-22-58	13.08.140
19-23	Ord. 1533 § 8, 5-10-56	13.08.150
19-24	Ord. 1533 § 9, 5-10-56; Ord. 1702, 4-4-57; Ord. 3429, 12-16-65; Ord. 5182, 11-1-73; Ord. 5399 § 2, 9-12-74; Ord. 6078 § 2, 9-22-77; Ord. 7375 §§ 1, 2, 11-10-81; Ord. 7603, 9-21-82	13.08.160
19-25—19-29	Reserved	Not codified
19-30	Ord. 2287 § 1, 9-29-60	13.12.010
19-31	Ord. 2287 § 2, 9-29-60; Ord. 5434, 10-24-74	13.12.020
19-32	Ord. 2287 § 2, 9-29-60; Ord. 5434, 10-24-74	13.12.040
19-33	Ord. 2287 § 2, 9-29-60	13.12.030
19-34	Ord. 2287 § 2, 9-29-60	13.12.050
19-35	Ord. 2287 § 2, 9-29-60	13.12.070
19-36	Ord. 2287 § 2, 9-29-60	13.12.220
19-37	Ord. 2287 § 2, 9-29-60	13.12.240
19-38	Reserved	Not codified
19-39	Ord. 2287 § 3, 9-29-60	13.12.080
19-40	Ord. 2287 § 4, 9-29-60	13.12.090
19-41	Ord. 2287 § 4, 9-29-60	13.12.100
19-42	Ord. 2287 § 4, 9-29-60	13.12.120
19-43	Ord. 2287 § 4, 9-29-60	13.12.110
19-44	Ord. 2287 § 4, 9-29-60	13.12.130
19-45	Ord. 2287 § 4, 9-29-60	13.12.140
19-46	Ord. 2287 § 4, 9-29-60	13.12.150
19-47	Ord. 2287 § 4, 9-29-60	13.12.160
19-48	Ord. 2287 § 4, 9-29-60	13.12.170
19-48.1	Ord. 6797, 12-27-79	13.12.180
19-49	Ord. 2287 § 5, 9-29-60	13.12.190
19-50	Ord. 2287 § 6, 9-29-60	13.12.200
19-51	Ord. 2287 § 7, 9-29-60	13.12.210
19-52	Ord. 2287 § 8, 9-29-60	13.12.250

19-53	Ord. 2287 § 9, 9-29-60	13.12.060
19-54	Ord. 2287 § 12, 9-29-60	13.12.230
19-55	Ord. 2287 § 10, 9-29-60	13.12.260
19A-1	Ord. 7714 § I, 3-15-83	19.04.010—19.04.030, 19.04.590—19.04.650, 19.04.670—19.04.680
19A-2	Ord. 7714 § II, 3-15-83	19.04.040—19.04.580
19A-3	Ord. 7714 § III, 3-15-83	19.12.010—19.12.110
19A-4	Ord. 7714 § IV, 3-15-83	19.16.010—19.16.100
19A-5	Ord. 7714 § V, 3-15-83	19.20.010—19.20.120
19A-6	Ord. 7714 § VI, 3-15-83	19.24.010—19.24.060
19A-7	Ord. 7714 § VII, 3-15-83	19.28.010—19.28.080
19A-8	Ord. 7714 § VIII, 3-15-83	19.08.030—19.28.110
19A-9	Ord. 7714 § IX, 3-15-83	19.32.010, 19.32.040—19.32.110, 19.32.130 and 19.32.150
19A-10	Ord. 7714 § X, 3-15-83	19.28.090, 19.28.110, 19.28.120 and 19.28.140—19.28.170
19A-11	Ord. 7714 § XI, 3-15-83	19.36.010—19.36.040
19A-12	Ord. 7714 § XII, 3-15-83	19.08.020
19A-13	Ord. 7714 § XIII, 3-15-83	19.08.010, 19.08.120, 19.08.130
20-1	Ord. 1312 Art. 21-3, 4-1-55	12.04.010
20-2	Ord. 1312 Arts. 1-1—1-12, 19-7, 19-8, 4-1-55; Ord. 4252 § 1, 1-22-69; Ord. 5187 § 1, 11-8-73; Ord. 5377 § 1, 8-8-74; Ord. 7204, 5-12-81	12.04.020—12.04.190
20-3	Ord. 1312 Ch. 1 Art. 1-13, 4-1-55	12.04.200
20-4	Ord. 1312 Art. 2-1, 4-1-55	12.08.010
20-5	Ord. 1312 Art. 2-2, 4-1-55	12.08.020
20-6	Ord. 1312 Art. 2-3, 4-1-55	12.08.030
20-7	Ord. 1312 Art. 2-4, 4-1-55	12.08.040
20-8	Ord. 1312 Art. 2-5, 4-1-55	12.08.060
20-9	Ord. 1312 Art. 2-6, 4-1-55	12.08.050
20-10	Ord. 1312 Art. 2-8, 4-1-55; Ord. 6185 § 1, 3-14-78	12.08.070
20-11	Ord. 1312 Art. 3-1, 4-1-55	12.08.020
20-12	Ord. 1312 Art. 3-2, 4-1-55	12.04.240
20-13	Ord. 1312 Art. 3-3, 4-1-55	12.04.230
20-14	Ord. 1312 Art. 3-4, 4-1-55	12.04.210
20-15	Ord. 1312 Art. 3-8, 4-1-55	12.04.220

20-16	Ord. 1312 Art. 3-6, 4-1-55; Ord. 2493,8-3-61; Ord. 2522, 9-21-61; Ord. 5360 § 1, 7-25-74	12.12.010
20-16.1	Ord. 5360 § 2, 7-25-74	12.80.010
20-17	Ord. 1312 Art. 3-7, 4-1-55	12.12.020
20-18	Ord. 1312 Art. 3-5, 4-1-55	12.80.030
20-19	Ord. 1312 Art. 3-9, 4-1-55; Ord. 7919, 11-15-83	12.16.010
20-20	Ord. 1312 Art. 3-10, 4-1-55	12.16.020
20-21	Ord. 1312 Art. 3-11, 4-1-55	12.16.030
20-22	Ord. 1312 Art. 17-1, 4-1-55; Ord. 2190 § 1, 12-31-59	12.08.080
20-23	Ord. 1312 Art. 17-2, 4-1-55	12.08.100
20-24	Ord. 1312 Art. 17-3, 4-1-55; Ord. 2190 § 2, 12-31-59	12.08.110
20-25	Ord. 1312 Art. 17-4, 4-1-55	12.08.090
20-26	Ord. 1312 Art. 18-1, 4-1-55; Ord. 1659 § 3, 12-20-56	12.84.010
20-27	Ord. 1312 Art. 18-2, 4-1-55	12.08.190
20-28	Ord. 1312 Art. 18-3, 4-1-55	12.08.210
20-29	Ord. 1312 Art. 18-4, 4-1-55	Repealed by 10971
20-29.1	Ord. 4311, 11-20-69; Ord. 5144, 9-27-73	12.08.130
20-29.2	Ord. 7335, 9-29-81	12.08.140
20-30	Ord. 1312 Art. 18-6, 4-1-55	Repealed by 10971
20-31	Ord. 1312 Art. 18-5, 4-1-55	Repealed by 10971
20-32	Ord. 1312 Art. 18-7, 4-1-55	Repealed by 10971
20-33	Ord. 1312 Art. 18-8, 4-1-55	12.08.200
20-34	Ord. 1312 Art. 18-9, 4-1-55; Ord. 1927, 8-14-58; Ord. 3897, 2-8-68; Ord. 4800 §§ 1, 2, 3-9-72; Ord. 5448 § 1, 11-7-74; Ord. 5454, 11-14-74; Ord. 5593, 7-17-75; Ord. 6633, 6-26-79; Ord. 7343, 10-6-81; Ord. 7494, 5-11-82	Repealed by 10971
20-35	Ord. 1312 Art. 4-1, 4-1-55	12.20.010
20-36	Ord. 1312 Art. 4-2, 4-1-55; Ord. 2962, 8-1-63	12.20.020
20-37	Ord. 1312 Art. 4-2, 4-1-55	12.20.030
20-38	Ord. 1312 Art. 4-4, 4-1-55	12.20.050

20-39	Ord. 1312 Art. 4-1A, 4-1-55; Ord. 1471, 1-12-56	12.20.040
20-40	Ord. 1312 Art. 4-5, 4-1-55; Ord. 5158, 10-4-73	12.20.060
20-41	Ord. 1312 Art. 4-6, 4-1-55; Ord. 6662, 7-24-79	12.20.070
20-42	Ord. 1312 Art. 4-7, 4-1-55	12.20.080
20-43	Ord. 1312 Art. 4-8, 4-1-55	12.20.090
20-44	Ord. 1312 Art. 4-9, 4-1-55	12.20.100
20-45	Ord. 1534 §§ 1—4, 5-10-56	12.20.110
20-46	Ord. 1312 Art. 4-10, 4-1-55	12.20.120
20-46.1	Ord. 2963 §§ 1, 2, 8-1-63	12.20.140
20-46.2	Ord. 3216 § 3, 11-19-64	12.20.150
20-46.3	Ord. 3388 § 3, 10-14-65	12.20.160
20-46.4	Reserved	Not codified
20-47	Ord. 1312 Art. 4-11, 4-1-55	12.20.130
20-48	Ord. 1312 Art. 5-1, 4-1-55	12.28.010
20-49	Ord. 1312 Art. 5-2, 4-1-55; Ord. 3367, 9-2-65; Ord. 4447 § 1, 8-13-70; Ord. 7799, 6-28-83	12.28.020
20-50	Ord. 1908 § 2, 6-26-58	12.28.030
20-51	Ord. of 5-29-31 § 1	12.28.040
20-52	Ord. 1312 Art. 6-1, 4-1-55; Ord. 3366, 9-2-65; Ord. 3959, 5-9-68	12.24.010
20-53	Ord. 1312 Arts.6-3,6-4, 4-1-55	12.24.020
20-54	Ord. 1312 Art. 6-1, 4-1-55	12.24.030
20-55	Ord. 1312 Art. 6-5, 4-1-55	12.24.040
20-56	Ord. 1312 Art. 7-1, 4-1-55	12.36.010
20-57	Ord. 1312 Art. 7-2, 4-1-55	12.36.020
20-58	Ord. 1312 Art. 7-3, 4-1-55	12.36.030
20-59	Ord. 1312 Art. 8-1, 4-1-55	12.60.010
20-60	Ord. 1312 Art. 8-2, 4-1-55	12.60.030
20-61	Ord. 1312 Art. 8-3, 4-1-55	12.60.020
20-62	Ord. 1312 Art. 8-4, 4-1-55	12.60.040
20-63	Ord. 1312 Art. 8-5, 4-1-55	12.60.050
20-64	Ord. 1312 Art. 8-6, 4-1-55	12.60.060
20-65	Ord. 1312 Art. 8-7, 4-1-55	12.60.070
20-66	Ord. 1312 Art. 8-8, 4-1-55	12.60.090
20-67	Ord. 1312 Art. 8-9, 4-1-55; Ord. 3932, 3-14-68	12.60.080

20-68	Ord. 1312 Art. 13-1, 4-1-55; Ord. 1659 § 2, 12-20-56	12.44.030
20-69	Ord. 1312 Art. 13-2, 4-1-55	12.44.040
20-70	Ord. 1312 Art. 13-3, 4-1-55; Ord. 1638, 11-15-56	12.44.050
20-71	Ord. 1312 Art. 13-4, 4-1-55	12.44.060
20-72	Ord. 1312 Art. 13-5, 4-1-55	12.44.070
20-73	Ord. 1312 Art. 14-4, 4-1-55	12.44.080
20-74	Ord. 1312 Art. 14-12, 4-1-55; Ord. 1918, 7-31-58	12.44.260
20-75	Ord. 1312 Art. 14-1, 4-1-55; Ord. 5187 § 2, 11-8-73; Ord. 6525, 3-20-79; Ord. 7631, 11-9-82	12.44.020
20-76	Ord. 1312 Art. 14-2, 4-1-55	12.44.010
20-77	Ord. 2030, 2-19-59; Ord. 2056, 4-9-59	12.44.220
20-78	Ord. 1312 Art. 14-10, 4-1-55	12.44.210
20-79	Ord. 1312 Art. 14-3, 4-1-55	12.44.270
20-80	Ord. 1312 Art. 14-5, 4-1-55	12.44.090
20-80.1	Ord. 5394 § 1, 9-5-74; Ord. 5668, 12-11-75	12.44.100
20-81	Ord. 1312 Art. 14-6, 4-1-55; Ord. 3095 § 1, 5-7-64; Ord. 6823, 1-22-80	12.44.110
20-81.1	Ord. 6885, 4-8-80	12.44.120
20-82	Ord. 1312 Art. 14-7, 4-1-55	12.44.130
20-83	Ord. 1312 Art. 14-8, 4-1-55	12.44.140
20-84	Ord. 1312 Art. 14-9, 4-1-55	12.44.150
20-85	Ord. 1312 Art. 11, 4-1-55	12.44.240, 12.44.250
20-86	Ord. 1312 Art. 15-1, 4-1-55; Ord. 4437, 7-16-70	12.48.010
20-87	Ord. 1312 Art. 15-2, 4-1-55; Ord. 4437, 7-16-70	12.48.020
20-88	Ord. 1312 Art. 15-4, 4-1-55; Ord. 4437, 7-16-70	12.48.030
20-89	Ord. 1312 Art. 15-5, 4-1-55; Ord. 7739, 4-19-83	12.48.040
20-90	Ord. 1312 Art. 15-6, 4-1-55	12.48.050
20-91	Ord. 1312 Art. 15-7, 4-1-55	12.48.060
20-91.1	Ord. 6922, 5-20-80; Ord. 7660, 1-11-83	12.48.070
20-92	Ord. 1312 Art. 16-1, 4-1-55	12.52.010
20-93	Ord. 1312 Art. 16-2, 4-1-55	12.52.070
20-94	Ord. 1312 Art. 16-3, 4-1-55	12.52.020
20-95	Ord. 1312 Art. 16-4, 4-1-55	12.52.030
20-96	Ord. 1312 Art. 16-5, 4-1-55	12.52.040

20-97	Ord. 1312 Art. 16-6, 4-1-55	12.52.050
20-97.1	Ord. 2260, 5-5-60	12.52.060
20-98	Ord. 1312 Art. 16-7, 4-1-55	12.44.250
20-99	Ord. 1842, 2-6-58; Ord. 6949, 7-1-80	12.44.170
20-99.1	Ord. 4416 §§ 1, 2, 6-4-70; Ord. 5448 § 2, 11-7-74; Ord. 5918, 1-27-77; Ord. 6175, 2-28-78; Ord. 6200, 4-11-78; Ord. 6442, 1-9-79; Ord. 6561, 4-17-79; Ord. 6704, 9-4-79; Ord. 6753, 10-30-79; Ord. 7496, 5-18-82; Ord. 7550, 7-20-82; Ord. 7762, 5-3-83; Ord. 7770 §§ 1, 2, 5-10-83	12.44.180
20-99.02	Ord. 6560, 4-17-79	12.44.190
20-99.2	Ord. 6441, 1-9-79; Ord. 6705, 9-4-79	12.44.200
20-99.3		12.44.230
20-100	Ord. 1312 Art. 20-1, 4-1-55; Ord. 7500, 5-25-82	12.56.010
20-101	Ord. 1312 Art. 20-2, 4-1-55; Ord. 3257 § 1, 1-28-65	12.56.020
20-102	Ord. 1312 Art. 20-3, 4-1-55; Ord. 3257 § 2, 1-28-65; Ord. 4252, 1-22-69	12.56.030
20-103	Ord. 1312 Art. 20-4, 4-1-55; Ord. 6309, 8-29-78	12.56.040
20-104	Ord. 1312 Art. 20-5, 4-1-55	12.56.050
20-105	Ord. 1312 Art. 20-6, 4-1-55	12.56.060
20-106	Ord. 1312 Art. 20-7(a, b), 4-1-55	12.56.070
20-107	Ord. 1312 Art. 20-7(c), 4-1-55; Ord. 1697, 3-21-57	12.56.080
20-108	Ord. 1312 Art. 11-1, 4-1-55	12.32.020
20-109	Ord. 1312 Art. 11-2, 4-1-55	12.32.010
20-110	Ord. 1312 Art. 11-3, 4-1-55	12.32.030
20-111	Ord. 1312 Art. 11-4, 4-1-55	12.32.040
20-112	Ord. 1312 Art. 11-5, 4-1-55; Ord. 7610 § 4, 10-12-82	12.32.060
20-113	Ord. of 12-20-34 § 2; Ord. 1312 Art. 11-6, 4-1-55	12.32.050
20-114	Ord. 1814 §§ 2, 6, 11-27-57	12.32.070
20-115	Ord. 1312 Art. 12-1, 4-1-55	12.76.010
20-115.1	Ord. 5377 § 20(A), 8-8-74	12.76.160
20-115.2	Ord. 5377 § 2(A), 8-8-74	12.76.020
20-116	Ord. 1312 Art. 12-2, 4-1-55	12.76.030
20-117	Ord. 1312 Art. 3-3, 4-1-55; Ord. 5377 § 2(B), 8-8-74	12.76.040
20-118	Ord. of 8-28-47 § 5; Ord. 5377 § 2(D), 8-8-74	12.76.050

20-119	Ord. of 8-28-47 § 6; Ord. 5377 § 2(E) 8-8-74	12.76.070
20-120	Ord. of 8-28-47 § 8; Ord. 5377 § 2(F), 8-8-74	12.76.100
20-121	Ord. of 8-28-47 § 7; Ord. 5377 § 2(G), 8-8-74	12.76.110
20-122	Ord. of 8-28-47 § 10	Repealed by 16913
20-123	Ord. of 8-28-47 § 11	12.76.090
20-124	Ord. of 8-28-47 § 12	12.76.120
20-125	Ord. of 8-28-47 § 13	12.76.130
20-126	Reserved	Not codified
20-127	Ord. of 2-1-45 § 3(b); Ord. 5377 § 2(I), 8-8-74	12.76.140
20-128	Ord. of 2-1-45 § 4; Ord. 5377 § 2(J), 8-8-74	12.76.150
20-129	Ord. of 8-28-47 § 14; Ord. 5377 § 2(K), 8-8-74	12.76.170
20-130	Ord. 1312 Art. 19-1, 4-1-55	12.40.010
20-131	Ord. 1312 Art. 19-2A(c), 4-1-55; Ord. 1489,c, 3-1-56	12.40.080
20-131.1	Ord. 6940, 6-17-80	12.40.020
20-132	Ord. 1312 Art. 19-2, 4-1-55; Ord. 5657, 11-20-75; Ord. 7651, 12-21-82	12.40.030
20-133	Ord. 1312 Art. 19-2A(b), 4-1-55; Ord. 1489,a,b, 3-1-56; Ord. 7205, 5-12-81	12.40.040
20-134	Ord. 1312 Art. 19-2A(d), 4-1-55; Ord. 1489,d, 3-1-56; Ord. 7206, 5-12-81	12.40.050
20-134.1	Ord. 7210, 5-12-81	12.40.060
20-135	Ord. 1908 § 1, 6-26-58	12.40.070
20-136	Ord. 1312 Art. 19-3, 4-1-55; Ord. 2725, 7-26-62; Ord. 7652, 12-21-82	12.40.090
20-137	Ord. 1312 Art. 19-4, 4-1-55; Ord. 6565, 4-17-79; Ord. 6571, 4-24-79; Ord. 6636, 6-26-79	Repealed by 11701
20-138	Ord. 1312 Art. 19-5, 4-1-55; Ord. 7211, 5-12-81	Repealed by 11701
20-139	Ord. 1312 Art. 19-6, 4-1-55	12.40.120
20-140	Ord. 981 § 1, 7-2-53	12.40.130
20-140.1	Ord. 5656 § 1, 11-20-75	12.40.140
20-141	Ord. 981 § 2, 7-2-53	12.40.150
20-142	Ord. 1401 § 5, 7-28-55	14.20.190
20-143	Ord. 1401 § 1, 7-28-55	14.20.200
20-144	Ord. 1401 § 2, 7-28-55	14.20.210

20-145	Ord. 1401 § 3, 7-28-55	14.20.220
20-146	Ord. 1401 § 4, 7-28-55	14.20.230
20-147	P.C. 1917 § 441	12.72.030
20-148	Ord. 3466 §§ 1—5, 2-17-66; Ord. 4219 §§ 1, 2, 7-10-69	12.72.020
20-149—20-154	Reserved	Not codified
20-155	P.C. 1917 § 531	12.72.010
20-156—20-157	Reserved	Not codified
20-157.1	Ord. 3200 § 1, 10-15-64; Ord. 7429, 2-16-82	12.68.010
20-157.2	Ord. 3200 §§ 2—4, 10-15-64; Ord. 4021 § 1, 11-21-68; Ord. 7147, 3-10-81	12.68.020
20-157.3	Ord. 3200 §§ 5—8, 10-15-64; Ord. 4021 § 3, 11-21-68	12.68.030
20-157.4	Ord. 3200 § 9, 10-15-64; Ord. 4021 § 4, 11-21-68	12.68.040
20-157.5	Ord. 3200 § 10, 10-15-64; Ord. 4021 § 5, 11-21-68	12.68.050
20-157.5.1		12.68.060
20-157.6	Ord. 3200 § 11, 10-15-64, 10-15-64	12.68.070
20-158	Ord. 1312 Art. 9-1, 4-1-55	12.80.040
20-159	Ord. 1312 Art. 9-2, 4-1-55	12.80.050
20-160	Ord. 1312 Art. 9-3, 4-1-55	12.80.060
20-161	Ord. 1312 Art. 2-7, 4-1-55	12.80.070
20-162	Ord. 1312 Art. 9-4, 4-1-55	12.80.080
20-163	Ord. 1312 Art. 9-5, 4-1-55	12.80.090
20-164	Ord. 1312 Art. 9-6, 4-1-55	12.80.100
20-165	Ord. 1312 Art. 9-7, 4-1-55	12.80.110
20-166	Ord. 1312 Art. 9-8, 4-1-55	12.80.120
20-167	Ord. 1312 Art. 9-9, 4-1-55	12.80.130
20-168	Ord. 1312 Art. 9-10, 4-1-55	12.80.140
20-169	Ord. 1312 Art. 9-11, 4-1-55	12.80.150
20-170	Ord. 1312 Art. 9-12, 4-1-55; Ord. 1364 § 1, 5-5-55	12.80.160
20-171	Ord. 1312 Art. 9-13, 4-1-55; Ord. 1364 § 1, 5-5-55	12.80.170
20-172	Ord. 1312 Art. 10-1, 4-1-55	12.80.180
20-173	Ord. 1312 Art. 10-2, 4-1-55	12.80.190
20-174	Ord. 1312 Art. 10-3, 4-1-55	12.80.200
20-175	Ord. 1312 Art. 10-4, 4-1-55	12.80.210
20-176	Ord. of 8-1-46 §§ 1, 2	12.80.020
20-176.1	Ord. 3239, 12-31-64	12.64.030
20-176.2	Ord. 3585 §§ 1—3, 8-4-66	12.64.040

20-176.3	Ord. 3748 §§ 1—3, 5-18-67	12.64.050
20-176.4	Ord. 3749 §§ 1—3, 5-18-67	12.64.010
20-176.5	Ord. 3845 § 1, 10-12-67	12.64.020
20-177	Ord. 1312 Ch. 7 Art. 7-2 Sched. I, 4-1-55; Ord. 1467 1-12-56; Ord. 1494, 3-8-56; Ord. 1578, 6-21-56; Ord. 1598, 9-27-56; Ord. 1901, 6-12-58; Ord. 1912, 7-10-58; Ord. 2093, 3-5-59; Ord. 2122, 9-17-59; Ord. 2198, 1-21-60; Ord. 2365, 11-17-60; Ord. 2400, 1-19-61; Ord. 2465, 6-15-61; Ord. 2361, 5-3-62; Ord. 2751, 10-4—62; Ord. 2803, 11-21-62; Ord. 3051 § 1, 1-16-64; Ord. 3054, 2-20-64; Ord. 3076, 3-26-64; Ord. 3093, 5-7-64; Ord. 3140, 7-30-64; Ord. 3162, 8-27-64; Ord. 3199 § 1, 10-15-64; Ord. 3216 § 1, 11-19-64; Ord. 3265, 2-25-65; Ord. 3388 § 1, 10-14-65; Ord. 3430 § 1, 12-16-65; Ord. 3520, 5-5-66; Ord. 3650 § 1, 11-17-66; Ord. 3651 § 1, 11-17-66; Ord. 3724 § 2, 4-6-67; Ord. 3753, 5-25-67; Ord. 3908, 2-22-68; Ord. 3915, 2-29-68; Ord. 3921 § 1, 3-7-68; Ord. 3967 § 1, 5-16-68; Ord. 4073, 10-17-68; Ord. 4113 § 1, 12-12-68; Ord. 4218 § 1, 6-19-69; Ord.4329, 2-24-69; Ord. 4354 § 1, 3-12-70; Ord. 4366 § 1, 4-16-70; Ord. 4386 § 1, 4-30-70; Ord. 4449, 8-20-70; Ord. 4636 § 1, 6-17-71; Ord. 4661, 7-29-71; Ord. 4684 § 1, 9-9-71; Ord. 4709, 10-28-71; Ord. 4807, 3-23-72; Ord. 5195 §§ 1, 2, 11-15-73; Ord. 5297 §§ 1, 2, 4-25-74; Ord. 5404, 9-12-74; Ord. 5469 § 1, 12-12-74; Ord. 5498 § 1, 2-6-75; Ord. 5707, 3-11-76; Ord. 5795, 8-5-76; Ord. 7385, 11-24-81; Ord. 7472, 4-6-82; Ord. 7533, 6-22-82; Ord. 7777, 5-24-83	12.88.010
20-178	Ord. 1312 Ch. 8 Art. 8-1 Sched. II, 4-1-55; Ord. 1364 § 3, 5-5-55; Ord. 1422, 10-6-55; Ord. 1435, 10-23-55; Ord. 1480, 2-9-56; Ord. 1513, 4-5-56; Ord. 1531, 5-3-56; Ord. 1544, 5-17-56; Ord. 1581, 7-5-56; Ord. 1602, 9-6-56; Ord. 1659 § 1, 12-20-56; Ord.	

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20-179	Ord. 1312 Ch. 16 Art. 16-3 Sched. III, 4-1-55; Ord. 1364 § 2, 5-5-55; Ord. 1385, 7-7-75; Ord. 1457, 1-5-56; Ord. 1514, 4-5-56; Ord. 1602 § 3, 9-6-56; Ord. 1752 § 1, 8-8-57; Ord. 1795, 11-7-57; Ord. 1798, 11-21-57; Ord. 1951, 9-25-58; Ord. 2005, 12-24-58; Ord. 2032 § 1, 2-26-59; Ord. 2038 § 2, 3-5-59; Ord. 2063, 4-30-59; Ord. 2161, 11-19-59; Ord. 2170 § 1, 11-27-59; Ord. 2399, 2-2-61; Ord. 2514, 9-28-61; Ord. 2528, 10-5-61; Ord. 2572, 11-22-61; Ord. 2599 § 1, 1-11-62; Ord. 2605 §§ 1, 2, 1-18-62; Ord. 2633, 3-8-62; Ord. 2634, 3-29-62; Ord. 2651, 4-5-62; Ord. 2674, 5-10-62; Ord. 2802, 11-21-62; Ord. 2844, 1-31-63; Ord. 2861, 2-14-63; Ord. 2862, 2-14-63; Ord. 2881, 3-14-63; Ord. 2906 § 1, 4-11-63; Ord. 2963 § 3, 8-1-63; Ord. 3041, 12-19-63; Ord. 3051 § 2, 1-16-64; Ord. 3094, 5-7-64; Ord. 3095 § 3, 5-7-64; Ord. 3139, 7-30-64; Ord. 3176, 9-10-64; Ord. 3188, 9-24-64; Ord. 3199 § 2, 10-15-64; Ord. 3216 § 2, 11-19-64; Ord. 3217 § 1, 11-12-64; Ord. 3218, 12-3-64; Ord. 3219, 11-25-64; Ord. 3230, 12-17-64; Ord. 3231, 12-24-64; Ord. 3255 § 1, 1-28-65; Ord. 3303 § 1, 4-22-65; Ord. 3305, 4-29-65; Ord. 3325 §§ 2, 3, 5-27-65; Ord. 3339, 7-1-65; Ord. 3371 § 1, 9-16-65; Ord. 3373, 9-16-65; Ord.	

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20-180	Ord. 1312 Ch. 7 Art. 7-2 Sched. IV, 4-1-55; Ord. 1345, 4-1-55; Ord. 1452, 12-22-55; Ord. 1549, 5-24-56; Ord. 1759, 9-5-57; Ord. 1796 § 1, 11-14-57; Ord. 1861, 3-13-58; Ord. 1927, 8-14-58; Ord. 2076, 6-4-59; Ord. 2285, 6-23-60; Ord. 2364, 11-17-60; Ord. 2481, 7-13-61; Ord. 2599 § 2, 1-11-62; Ord. 2604, 1-18-62; Ord. 2906 § 2, 4-11-63; Ord. 2920,. 5-16-63; Ord. 3051 § 3, 1-16-64; Ord. 3303 § 2, 4-22-65; Ord. 3325 § 1, 5-27-65; Ord. 3355, 8-19-65; Ord. 3372, 9-16-65; Ord. 3562, 6-30-66; Ord. 3563 § 2, 6-30-66; Ord. 3913 § 3, 2-29-68; Ord. 4325 §§ 1, 2, 12-24-69; Ord. 4744 §§ 1—3, 12-23-71; Ord. 5305 §§ 2, 3, 11-21-73; Ord. 5347 § 3, 7-11-74; Ord. 5848, 10-20-76; Ord. 5946, 3-10-77; Ord. 5947, 3-10-77; Ord. 7587, 8-24-82; Ord. 7698, 3-1-83	12.88.040
20-181	Ord. 1312 Ch. 7 Art. 7-2 Sched. V, 4-1-55; Ord. 4471, 9-10-70	12.88.050
20-182	Ord. 1312 Ch. 7 Art. 7-2 Sched. VI, 4-1-55; Ord. 1583, 7-12-56; Ord. 1613, 9-20-56; Ord. 1642, 11-25-56; Ord. 1700, 3-28-57; Ord. 1815, 12-12-57; Ord. 1920, 7-31-58; Ord. 2006, 12-24-58; Ord. 2129, 10-8-59; Ord. 2162, 11-19-59; Ord. 22182-11-60; Ord. 2529, 10-5-61; Ord. 3095 § 4, 5-7-64; Ord. 3106, 5-21-64; Ord. 3195, 10-8-64; Ord. 3217 § 2, 11-12-64; Ord. 3255 §§ 2, 3, 1-28-65; Ord. 3256 §§ 1—3, 1-28-65; Ord. 3371 §§ 2—4, 9-16-65; Ord. 3452 § 2, 1-20-66; Ord. 3470 § 1, 2-24-66; Ord. 3491 § 2, Ord. 3563 § 3, 6-30-66; Ord. 3684, 1-19-67; Ord. 3811 § 2, 8-24-67; Ord. 3827,	

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20-183	Ord. 1312 Ch. 7 Art. 7-2 Sched. VII, 4-1-55; Ord. 4289, 10-23-69; Ord. 4527, 12-10-70; Ord. 4969 § II, 11-22-72; Ord. 5047, 4-12-73; Ord. 5698, 2-25-76; Ord. 5709, 3-11-76; Ord. 5832, 9-23-76; Ord. 6075, 9-22-77; Ord. 6101, 10-27-77; Ord. 6121, 12-1-77; Ord. 6398, 11-28-78; Ord. 6429, 12-26-78; Ord. 7050, 11-12-80; Ord. 7207, 5-12-81; Ord. 7306, 9-1-81; Ord. 7315, 9-8-81; Ord. 7338, 9-22-81; Ord. 7368, 11-3-81	12.88.070
20-184	Ord. 1312 Ch. 7 Art. 7-2 Sched. VIII, 4-1-55; Ord. 4262 § 2, 10-2-69; Ord. 5656 §§ 2—4, 11-20-75	12.88.080
20-184.1	Ord. 7209, 5-12-81; Ord. 7653, 12-21-82	(Repealed by 13561)
20-184.2	Ord. 7654, 12-21-82	(Repealed by 13561)
20-185	Ord. 1312 Ch. 7 Art. 7-2 Sched. IX, 4-1-55; Ord. 1602 § 1, 9-6-56; Ord. 2911, 5-2-63; Ord. 4262 § 3, 10-2-69; Ord. 6570, 4-24-79; Ord. 7241, 6-16-81	Repealed by 11701
20-186	Ord. of 11-6-58 § 9(r); Ord. 4262 § 4, 10-2-69	Repealed by 11701
20-187	Ord. 1312 Ch. 7 Art. 7-2 Sched. X, 4-1-55; Ord. 2690, 6-7-62; Ord. 3257 § 3, 1-28-65; Ord. 3974 §§ 2, 3, 5-23-68; Ord. 5160, 10-4-73; Ord. 6023, 7-28-77; Ord. 6080, 9-22-77; Ord. 6780, 12-11-79; Ord. 7499, 5-25-82	12.88.130

20-188	Ord. 1312 Ch. 7 Art. 7-2 Sched. XI, 4-1-55; Ord. 1471, 1-12-56; Ord. 1835, 1-30-58; Ord. 1982, 11-6-58; Ord. 2038 § 3, 3-5-59; Ord. 2078, 6-4-59; Ord. 2170 § 2, 11-27-59; Ord. 2379, 12-2-60; Ord. 2380, 12-22-60; Ord. 2477, 7-6-61; Ord. 2546, 10-25-61; Ord. 2630, 3-1-62; Ord. 2952, 7-18-63; Ord. 3058, 2-27-64; Ord. 3232, 12-24-64; Ord. 3540, 6-2-66; Ord. 3544, 6-9-66; Ord. 3650 § 3, 11-17-66; Ord. 3651 §§ 2, 3, 11-17-66; Ord. 3724 § 3, 4-6-67; Ord. 3845 § 2, 10-2-67; Ord. 3920, 3-7-68; Ord. 3930 § 1, 3-14-68; Ord. 3967 § 4, 5-16-68; Ord. 3987 §§ 1, 2, 6-13-68; Ord. 3993 § 2, 6-20-68; Ord. 4008, 7-11-68; Ord. 4041, 8-29-68; Ord. 4138, 2-20-69; Ord. 4146 §§ 1—3, 2-13-69; Ord. 4169 § 2, 3-13-69; Ord. 4241, 7-31-69; Ord. 4281 § 1, 10-9-69; Ord. 4366 § 3, 4-16-70; Ord. 4413 § 2, 5-28-70; Ord. 4424, 6-28-70; Ord. 4448, 8-13-70; Ord. 4531, 12-17-70; Ord. 4562, 2-4-71; Ord. 4610, 4-22-71; Ord. 4680, 8-26-71; Ord. 4684 § 2, 9-9-71; Ord. 4698, 10-14-71; Ord. 4754, 1-6-72; Ord. 4821 § 1, 4-13-72; Ord. 4910, 8-10-72; Ord. 4971, 11-30-72; Ord. 5011, 3-1-73; Ord. 5161, 10-4-73; Ord. 5195 § 4, 11-15-73; Ord. 5213 § 2, Ord. 5245, 4-24-74; Ord. 5344 §§ 1, 2, 6-27-74; Ord. 5347 § 4, 7-11-74; Ord. 5442, 10-31-74; Ord. 5482, 12-26-74; Ord. 5498 § 2, 2-6-75; Ord. 5539, 4-17-75; Ord. 5608, 8-28-75; Ord. 5699, 2-25-76; Ord. 5723, 4-1-76; Ord. 5732, 4-15-76; Ord. 5775, 7-1-76; Ord. 5853, 10-20-76; Ord. 5940, 3-3-77; Ord. 6099, 10-20-77; Ord. 6131, 12-8-77; Ord. 6154, 1-24-78; Ord. 6210, 4-11-78; Ord. 6247, 6-6-78; Ord. 6346, 10-3-78; Ord. 6477, 2-20-79; Ord. 6740, 10-9-79; Ord. 6752, 10-30-79; Ord. 6854,

	3-11-80; Ord. 6929, 5-27-80; Ord. 6939, 6-17-80; Ord. 7022, 10-7-80; Ord. 7121, 2-17-81; Ord. 7231, 6-9-81; Ord. 7270 §§ 1, 2, 7-21-81; Ord. 7288, 8-18-81; Ord. 7395, 12-15-81; Ord. 7473, 4-6-82; Ord. 7557, 7-27-82; Ord. 7613 §§ 1, 2, 10-12-82; Ord. 7779 §§ 1—3, 5-31-83; Ord. 7844 § 1, 8-30-83; Ord. 7845, 9-6-83; Ord. 7916, 11-15-83	12.88.140
20-189	Reserved	Not codified
20-190	Ord. 2126 §§ 1—3, 10-1-59; Ord. 2169 §§ 1—3, 11-27-59; Ord. 2242,4-7-60; Ord. 2398, 1-15-61; Ord. 2435, 3-23-61; Ord. 2473, 6-22-61; Ord. 2496, 8-10-61; Ord. 2509, 9-14-61; Ord. 2520, 9-28-61; Ord. 2549,11-9-61; Ord. 2627, 2-22-62; Ord. 2668 §§ 1—3, 5-3-63; Ord. 2669, 6-7-62; Ord. 2696, 8-15-63; Ord. 2882 § 2, 3-14-63; Ord. 2969, 8-15-63; Ord. 3028, 11-21-63; Ord. 3095, 5-7-64; Ord. 3125/§§ 1—3, 7-9-64; Ord. 3159, 8-20-64; Ord. 3192, 10-1-64; Ord. 3240, 1-7-65; Ord. 3258, 2-4-65; Ord. 3273, 3-4-65; Ord. 3371 § 5, 9-16-65; Ord. 3381, 10-7-65; Ord. 3408 §§ 1—3, 11-11-65; Ord. 3425, 12-9-65; Ord. 3437, 12-30-65; Ord. 3470 § 2, 2-24-66; Ord. 3543, 6-9-66; Ord. 3556, 6-23-66; Ord. 3563 § 4, 6-30-66; Ord. 3589 § 2, 8-11-66; Ord. 3611, 9-8-66; Ord. 3639 § 1, 11-10-66; Ord. 3723, 4-6-67; Ord. 3930 §§ 2, 3, 3-14-68; Ord. 3941 § 1, 3-28-68; Ord. 3947 § 2, 4-11-68; Ord. 4003, 7-3-68; Ord. 4016 §§ 1, 2, 7-25-68; Ord. 4017 §§ 1, 2, 7-25-68; Ord. 4070, 10-17-68; Ord. 4150 § 1, 2-27-69; Ord. 4281 §§ 1, 2, 10-9-69; Ord. 4292, 10-30-69; Ord. 4298 § 2, 11-6-69; Ord. 4313, 11-20-69; Ord. 4447, 8-13-70; Ord. 4533, 12-24-70; Ord. 4734, 12-2-71; Ord. 4812 § 2, 3-31-72; Ord. 4821 § 2, 4-13-72; Ord. 4846, 5-18-72; Ord. 4873, 6-15-72; Ord. 4911, 8-10-72; Ord. 4919 § 3, 8-31-72; Ord. 4947, 10-19-72; Ord. 4981 §	

	III, 12-21-72; Ord. 5039, 4-5-73; Ord. 5194, 11-15-73; Ord. 5204, 11-21-73; Ord. 5252 §§ (1) — (4), 2-7-74; Ord. 5260 §§ 1—4, 2-14-74; Ord. 5347 §§ 5—9, 7-11-74; Ord. 5471 §§ 1, 2, 12-19-74; Ord. 5513, 3-20-75; Ord. 5580, 6-26-75; Ord. 5606, 8-21-75; Ord. 5614 §§ 1—7, 9-4-75; Ord. 5615 §§ 1, 2, 9-4-75; Ord. 5635 §§ 1, 2, 10-9-75; Ord. 5700, 2-25-76; Ord. 5793, 8-5-76; Ord. 5807, 8-26-76; Ord. 5808, 8-26-76; Ord. 5851, 10-20-76; Ord. 5863, 11-4-76; Ord. 5872, 11-11-76; Ord. 5887, 12-2-76; Ord. 5888, 12-2-76; Ord. 5907, 1-13-77; Ord. 5959, 3-17-77; Ord. 5972, 4-7-77; Ord. 5999, 6-9-77; Ord. 6042, 8-25-77; Ord. 6073, 9-22-77; Ord. 6316, 9-5-78; Ord. 6334, 9-19-78; Ord. 6373, 10-31-78; Ord. 6401, 11-28-78; Ord. 6935, 6-10-80; Ord. 6963, 7-15-80; Ord. 7019 §§ 1—3, 9-30-80; Ord. 7037 §§ 1—3, 10-28-80; Ord. 7042 §§ 1—4, 12-28-80; Ord. 7102, 1-6-81; Ord. 7148, 3-17-81; Ord. 7173 §§ 1, 2, 3-31-81; Ord. 7227 §§ 1—3, 5-26-81; Ord. 7251 §§ 1, 2, 6-30-81; Ord. 7491, 5-4-82; Ord. 7633, 11-16-82; Ord. 7831 §§ 1, 2, 8-16-83; Ord. 7883, 10-4-83; Ord. 7959, 1-3-84	12.88.150
20-191	Ord. 995 §§ 1,3, 5-7-53; Ord. 1264 §§ 2, 3, 10-7-54; Ord. 2213 §§ 1—3, 2-18-60; Ord. 2695 § 1, 6-14-62	12.88.160
20-192	Ord. 2260, 5-5-60; Ord. 7305, 9-1-81	12.88.170
20-193	Ord. 3725 §§ 1—4, 4-6-67; Ord. 3974 § 4, 5-23-68; Ord. 4114 §§ 1—3, 12-19-68; Ord. 4185 § 2, 4-10-69; Ord. 4636 § 2, 6-17-71; Ord. 4682 § 2, 9-2-71; Ord. 5344 §§ 4, 5, 6-27-74; Ord. 5455 § 2(A)— (C), 11-14-74; Ord. 5469 § 4, 12-12-74; Ord. 5729, 4-8-76; Ord. 5838, 9-30-76; Ord. 5850, 10-20-76; Ord. 5912, 6-30-77; Ord. 6074, 9-22-77; Ord. 6146 § 2, 1-12-78; Ord. 6596, 5-22-79; Ord. 7322, 9-15-81; Ord. 7579, 8-17-82	12.88.180
20-194	Ord. 5778, 7-1-76	12.88.190
20-195	Ord. 7208, 5-12-81	12.44.160

21-1	Ord. of 10-23-41 § 1	15.04.010
21-2	Ord. of 10-23-41 § 2	15.04.020
21-3	Ord. of 10-23-41 § 3	15.04.030
21-4	Ord. of 10-23-41 § 4	15.04.040
21-5	Ord. of 10-23-41 § 5	15.04.050
21-6	Ord. of 10-23-41 § 6	15.04.060
21-7	Ord. of 8-21-41 § 1	15.04.070
21-8	Ord. of 8-21-41 § 2	15.04.080
21-9	Ord. of 8-21-41 § 3	15.04.090
21-10	Ord. of 8-21-41 § 4	15.04.100
21-11	Ord. of 8-21-41 § 5	15.04.110
21-12	Ord. of 4-11-39 § 1	15.04.120
21-13	Ord. of 4-11-39 § 2	15.04.130
21-14	Ord. of 4-11-39 § 1	15.04.140
21-15	Ord. of 4-11-39 § 3	15.04.150
21-16	Ord. of 4-11-39 § 4	15.04.160
21-17	Ord. of 4-19-23 § 1	15.04.190
21-18	P.C. 1917 § 931	15.04.170
21-19	P.C. 1917 § 939	15.04.180
21-20	P.C. 1917 § 940	15.04.200
21-21	Ord. of 6-13-40 § 1	15.08.020
21-22	Ord. of 6-13-40 § 2	15.08.030
21-23	Ord. of 6-13-40 § 3	15.08.050
21-24	Ord. of 6-13-40 § 4	15.08.060
21-25	Ord. of 6-13-40 § 5	15.08.010
21-26	Ord. of 6-13-40 § 6	15.08.110
21-27	Ord. of 6-13-40 § 7	15.08.100
21-28	Ord. of 6-13-40 § 8	15.08.090
21-29	Ord. of 6-13-40 § 11	15.08.080
21-30	Ord. of 6-13-40 § 9	15.08.070
21-31	Ord. of 6-13-40 § 10	15.08.040
22-1		6.04.010
22-2		6.04.020
22-3		6.04.030
22-4		6.04.040
22-5		6.04.050
22-6		6.08.010
22-7		6.08.020
22-8		6.08.030
22-9		6.08.040
22-10		6.08.050
22-11		6.12.010
22-12		6.12.020
22-13		6.12.030

22-14	6.12.040
22-15	6.12.050
22-16	6.12.060
22-17	6.12.070
22-18	6.12.080
22-19	6.12.090
22-20	6.12.100
22-21	6.12.110
22-22	Repealed by 13295
22-23	6.12.130
22-24	6.16.010
22-25	6.16.020
22-26	6.16.030
22-27	6.16.040
22-28	6.16.050
22-29	6.16.060
22-30	6.16.070
22-31	6.16.080
22-32	6.16.090
22-33	6.16.100
22-34	6.16.110
22-35	6.16.120
22-36	6.16.130
22-37	6.16.140
22-38	6.16.150
22-39	6.16.160
22-40	6.16.170
22-41	6.16.180
22-42	6.16.190
22-43	6.16.200
22-44	6.16.210
22-45	6.16.220
22-46	6.16.230
22-47	6.16.240
22-48	6.16.250
22-49	6.16.260
22-50	6.16.270
22-51	6.16.280
22-52	6.16.290
22-53	6.16.300
22-54	6.16.310
22-55	6.16.320
22-56	6.16.330
22-57	6.16.340
22-58	6.16.350

22-59	6.16.360
22-60	6.16.370
22-61	6.16.380
22-62	6.16.390
22-63	6.16.400
22-64	6.16.410
22-65	6.16.420
22-66	6.16.430
22-67	6.16.440
22-68	6.16.450
22-69	6.16.460
22-70	6.16.470
22-71	6.16.480
22-72	6.16.490
22-73	6.16.500
22-74	6.16.510
22-75	6.16.520
22-76	6.16.530
22-77	6.16.540
22-78	6.16.550
22-79	6.16.560
22-80	6.16.570
22-81	6.16.580
22-82	6.20.010
22-83	6.20.020
22-84	6.20.030
22-85	6.20.040
22-86	6.20.050
22-87	6.20.060
22-88	6.20.070
22-89	6.20.080
22-90	6.20.090
22-91	6.20.100
22-92	6.20.110
22-93	6.20.120
22-94	6.24.010
22-95	6.24.020
22-96	6.24.030
22-97	6.28.010
22-98	6.28.020
22-99	6.28.030
22-100	6.28.040
22-101	6.28.050
22-102	6.28.060
22-103	6.28.070

22-104		6.28.080
22-105		6.28.090
22-106		6.28.100
22-107		6.28.110
22-108		6.28.120
22-109		6.28.130
22-110		6.28.140
22-111		6.28.150
22-112		6.32.010
22-113		6.32.020
22-114		6.32.030
22-115		6.32.040
22-116		6.32.050
22-117		6.32.060
22-118		6.32.070
22-119		6.32.080
22-120		6.32.090
22-121		6.32.100
22-122		6.32.110
22-123		6.32.120
22-124		6.32.130
22-125		6.32.140
22-126		6.32.150
22-127		6.32.160
22-128		6.32.170
22-129		6.36.010
22-130		6.36.020
22-131		6.36.030
22-132		6.36.040
22-133		Not codified
22-134		6.36.050
22-135		Not codified
22-136		6.36.060
22-137		6.36.070
22-138		6.36.080
22-139		6.36.090
22-140		6.36.100
22-141		6.36.110
22-142		6.36.120
22-143		6.36.130
22-144—22-146	Reserved	Not codified
22-147	Ord. 3642, 11-10-66; Ord. 7246 § 1, 6-16-81; Ord. 7254 § 10(2), 7-7-81	6.40.010
22-148	Ord. 3642, 11-10-66; Ord. 7254 § 10(2), 7-7-81	6.40.030

22-149	Ord. 3642, 11-10-66; Ord. 7254 § 10(2), 7-7-81	6.40.030
22-150	Ord. 7685, 2-15-83	6.40.020
22-151	Ord. 6581 § 1, 5-8-79; Ord. 7246 §§ 2, 3, 6-16-81; Ord. 7254 § 10(2), 7-7-81	6.40.040
22-152	Ord. 6581 § 2, 5-8-79; Ord. 7246 §§ 4—9, 6-16-81; Ord. 7254 § 10(2), 7-7-81	6.40.120
22-153	Ord. 6581 § 3, 5-8-79; Ord. 7246 § 10, 6-16-81; Ord. 7254 § 10(2), 7-7-81	6.40.050
22-154	Ord. 6581 § 4, 5-8-79; Ord. 7246 §§ 11, 12, 6-16-81; Ord. 7254 § 10(2), 7-7-81	6.40.060
22-155	Ord. 6581 § 5, 5-8-79; Ord. 7246 § 13, 6-16-81; Ord. 7254 § 10(2), 7-7-81	6.40.070
22-156	Reserved	Not codified
22-157	Ord. 6581 § 7, 5-8-79; Ord. 7246 § 14, 6-16-81; Ord. 7254 § 10(2), 7-7-81	6.40.090
22-158	Ord. 6581 § 8, 5-8-79; Ord. 7246 §§ 15, 16, 6-16-81; Ord. 7254 § 10(2), 7-7-81	6.40.080
22-159—22-161	Reserved	Not codified
22-162	Ord. 6581 § 12, 5-8-79; Ord. 7246 § 17, 6-16-81; Ord. 7254 § 10(2), 7-7-81	6.40.100
22-163	Ord. 6581 § 13, 5-8-79; Ord. 7246 § 18, 6-16-81; Ord. 7254 § 10(2), 7-7-81; Ord. 7817 § 22, 8-2-83	6.40.110
22-164—22-165	Reserved	Not codified
22-166	Ord. 7246 § 19, 6-16-81	6.40.130
23-1	Ord. 1775 § 2, 9-19-57	15.12.010
23-2	Ord. of 11-21-46	15.12.020
23-3	Ord. 1286 § 1, 12-1-54	15.12.030
23-4	Ord. 1286 § 2, 12-1-54	15.12.040
23-5	Ord. 1286 § 3, 12-1-54; Ord. 4429-A, 7-2-70	15.12.050
23-6	Ord. 1286 § 4, 12-1-54	15.12.060
23-7	Ord. 505 § 1, 12-28-50	15.12.070
23-8	Ord. 7756-30-52	Repealed by 8391, 10503
23-9	Ord. 218 § 1, 7-7-49	Repealed by 10503
23-10	Ord. 218 § 2, 7-7-49	Repealed by 10503
23-11	Ord. 218 § 3, 7-7-49	Repealed by 10503
23-12	Ord. of 7-10-34 § 15	9.80.150
23-13	Ord. of 7-10-34 § 16	9.80.180
23-14	Ord. of 7-10-34 § 1	9.80.010
23-15	Ord. of 7-10-34 § 2	9.80.020
23-16	Ord. of 7-10-34 § 3	9.80.030
23-17	Ord. of 7-10-34 § 3-a	9.80.040
23-18	Ord. of 7-10-34 § 13	9.80.050
23-19	Ord. of 7-10-34 § 14	9.80.060

23-20	Ord. of 7-10-34 § 4; Ord. 7817 § 23, 8-2-83	9.80.160
23-21	Ord. of 7-10-34 § 5	9.80.070
23-22	Ord. of 7-10-34 § 6	9.80.080
23-23	Ord. of 7-10-34 § 7	9.80.170
23-24	Ord. of 7-10-34 § 8	9.80.090
23-25	Ord. of 7-10-34 § 9; Ord. of 3-25-37 § 1	9.80.100
23-26	Ord. of 7-10-34 § 9-A; Ord. of 3-25-37 § 1	9.80.140
23-27	Ord. of 7-10-34 § 10	9.80.110
23-28	Ord. of 7-10-34 § 11	9.80.120
23-29	Ord. of 7-10-34 § 12	9.80.130
23-30		Repealed by 10503
23-31		15.12.075
23-32		15.12.005
23-33		Repealed by 10503
23-34		15.12.120
23-35		15.12.130
Ch. 24	Reserved	Not codified
25-1		Repealed by 16653
25-2		Repealed by 16653
25-3		Repealed by 16653
25-4		Repealed by 16653
25-5		Repealed by 16653
25-6	Ord. 6710 § 2, 9-11-79; Ord. 6820 § 1, 1-15-80; Ord. 7295 § 1, 8-25-81; Ord. 7705 § 1, 3-8-83; Ord. 7772 §§ 7, 8, 5-18-83; Ord. 7829 §§ 2, 3, 8-16-83; Ord. 7901 § 1, 10-25-83	Repealed by 16653
25-7		Repealed by 16653
25-8		Repealed by 16653
25-9		Repealed by 16653
25-10.1		Repealed by 16653
25-10.2		Repealed by 16653
25-10.3		Repealed by 16653
25-10.4		Repealed by 16653
25-10.5		Repealed by 16653
25-10.6	Ord. 6701 §§ 3, 4, 9-11-79	Repealed by 16653
25-10.7		Repealed by 16653
25-11.1		Repealed by 16653
25-11.2	Ord. 6927 § 2, 5-27-80; Ord. 6941, 6-17-80	Repealed by 16653
25-11.3		Repealed by 16653
25-11.4		Repealed by 16653
25-11.5	Ord. 6701 § 5, 9-11-79	Repealed by 16653
25-12—25-19	Reserved	Not codified
25-20.1		Repealed by 16653

25-20.2		Repealed by 16653
25-20.3	Ord. 7854 § 1, 9-6-83	Repealed by 16653
25-20.4		Repealed by 8630
25-20.5	Ord. 7039 § 3, 10-28-80; Ord. 7574 § 1, 8-17-82; Ord. 7713 § 1, 3-15-83; Ord. 7772 § 2, 5-18-83; Ord. 7829 §§ 6, 7, 8-16-83; Ord. 7867 § 1, 9-13-83	Repealed by 16653
25-20.6	Ord. 7039 § 1, 10-28-80; Ord. 7574 § 2, 8-17-82; Ord. 7772 § 10, 5-18-83	Repealed by 16653
25-20.7		Repealed by 16653
25-20.8		Repealed by 16653
25-20.9		Repealed by 16653
25-20.10		Repealed by 16653
25-21.1		Repealed by 16653
25-21.2		Repealed by 16653
25-21.3	Ord. 7854 § 1, 9-6-83	Repealed by 16653
25-21.4		Repealed by 8630
25-21.5	Ord. 7039 § 3, 10-28-80; Ord. 7240 § 2, 6-16-81; Ord. 7574 § 1, 8-17-82; Ord. 7713 § 1, 3-15-83; Ord. 7772 § 2, 5-18-83; Ord. 7829 §§ 6, 7, 8-16-83; Ord. 7867 § 1, 9-13-83	Repealed by 16653
25-21.6	Ord. 7039 § 1, 10-28-80; Ord. 7574 § 2, 8-17-82; Ord. 7772 § 10, 5-18-83	Repealed by 16653
25-21.7		Repealed by 16653
25-21.8	Ord. 7240 § 3, 6-16-81	Repealed by 16653
25-21.9	Ord. 7240 § 4, 6-16-81	Repealed by 16653
25-21.10		Repealed by 16653
25-22.1		Repealed by 16653
25-22.2		Repealed by 16653
25-22.3	Ord. 7854 § 1, 9-6-83	Repealed by 16653
25-22.4		Repealed by 8630
25-22.5	Ord. 7039 § 3, 10-28-80; Ord. 7574 § 1, 8-17-82; Ord. 7713 § 1, 3-15-83; Ord. 7772 § 2, 5-18-83; Ord. 7829 §§ 6, 7, 8-16-83; Ord. 7867 § 1, 9-13-83	Repealed by 16653
25-22.6	Ord. 7039 § 1, 10-28-80; Ord. 7574 § 2, 8-17-82; Ord. 7772 § 10, 5-18-83	Repealed by 16653
25-22.7		Repealed by 16653
25-22.8		Repealed by 16653
25-22.9		Repealed by 16653
25-22.10		Repealed by 16653
25-23.1		Repealed by 16653
25-23.2		Repealed by 16653
25-23.3	Ord. 7746 §§ 1—4, 4-26-83; Ord. 7854 § 1, 9-6-83	Repealed by 16653
25-23.4		Repealed by 8630
25-23.5	Ord. 7039 § 1, 10-28-80	Repealed by 16653

25-23.6		Repealed by 16653
25-23.7		Repealed by 16653
25-23.8		Repealed by 16653
25-23.9		Repealed by 16653
25-23.10		Repealed by 16653
25-23.11	Ord. 7039 § 3, 10-28-80; Ord. 7713 § 1, 3-15-83; Ord. 7867 § 1, 9-13-83	Repealed by 16653
25-24.1	Ord. 7806, 7-12-83	Repealed by 16653
25-24.2	Ord. 7806, 7-12-83	Repealed by 16653
25-24.3	Ord. 7806, 7-12-83; Ord. 7854 § 1, 9-6-83	Repealed by 16653
25-24.4	Ord. 7806, 7-12-83	Repealed by 16653
25-24.5	Ord. 6701 § 6, 9-11-79; Ord. 7039 § 2, 10-28-80; Ord. 7713 § 1, 3-15-83; Ord. 7806, 7-12-83; Ord. 7829 §§ 6, 7, 8-16-83; Ord. 7867 § 1, 9-13-83	Repealed by 16653
25-24.6	Ord. 7806, 7-12-83	Repealed by 8630
25-24.7	Ord. 7806, 7-12-83	Repealed by 16653
25-24.8	Ord. 7806, 7-12-83	Repealed by 16653
25-24.9	Ord. 7806, 7-12-83	Repealed by 16653
25-24.10		Repealed by 16653
25-24.11	Ord. 7806, 7-12-83	Repealed by 16653
25-24.12		Repealed by 16653
25-24.13		Repealed by 16653
25-24.14		Repealed by 16653
25-24.15		Repealed by 13830
25-24.16		Repealed by 13830
25-25.1		Repealed by 16653
25-25.2	Ord. 7735 § 1, 4-12-83	Repealed by 16653
25-25.3	Ord. 7854 § 1, 9-6-83	Repealed by 16653
25-25.4		Repealed by 8630
25-25.5	Ord. 7039 § 3, 10-28-80; Ord. 7574 § 1, 8-17-82; Ord. 7713 § 1, 3-15-83; Ord. 7772 §§ 2, 3, 5-18-83; Ord. 7829 §§ 6, 7, 8-16-83; Ord. 7867 § 1, 9-13-83	Repealed by 16653
25-25.6	Ord. 7039 § 1, 10-28-80; Ord. 7574 § 2, 8-17-82; Ord. 7772 § 10, 5-18-83	Repealed by 16653
25-25.7		Repealed by 16653
25-25.8	Ord. 7735 §§ 2—4, 4-12-83	Repealed by 16653
25-25.9		Repealed by 16653
25-25.10	Ord. 6701 § 7, 9-11-79	Repealed by 16653
25-25.11		Repealed by 16653
25-26.1		Repealed by 16653
25-26.2	Ord. 7735 § 1, 4-12-83	Repealed by 16653
25-26.3	Ord. 7854 § 1, 9-6-83	Repealed by 16653
25-26.4		Repealed by 8630

25-26.5	Ord. 7039 § 3, 10-28-80; Ord. 7574 § 1, 8-17-82; Ord. 7713 §§ 2, 3, 3-15-83; Ord. 7829 §§ 6, 7, 8-16-83; Ord. 7867 § 1, 9-13-83	Repealed by 16653
25-26.6	Ord. 7039 § 1, 10-28-80; Ord. 7574 § 2, 8-17-82; Ord. 7772 § 10, 5-18-83	Repealed by 16653
25-26.7		Repealed by 16653
25-26.8		Repealed by 16653
25-26.9		Repealed by 16653
25-26.10	Ord. 6701 § 8, 9-11-79	Repealed by 16653
25-26.11		Repealed by 16653
25-27.1		Repealed by 16653
25-27.2	Ord. 7735 § 1, 4-12-83	Repealed by 16653
25-27.3	Ord. 7854 § 1, 9-6-83	Repealed by 16653
25-27.4		Repealed by 8630
25-27.5	Ord. 7039 § 3, 10-28-80; Ord. 7574 § 1, 8-17-82; Ord. 7713 § 1, 3-15-83; Ord. 7772 §§ 2, 3, 5-18-83; Ord. 7829 §§ 6, 7, 8-16-83; Ord. 7867 § 1, 9-13-83	Repealed by 16653
25-27.6	Ord. 7039 § 1, 10-28-80; Ord. 7574 § 2, 8-17-82; Ord. 7772 § 10, 5-18-83	Repealed by 16653
25-27.7		Repealed by 16653
25-27.8	Ord. 7735 §§ 5—7, 4-12-83	Repealed by 16653
25-27.9		Repealed by 16653
25-27.10	Ord. 6701 § 9, 9-11-79	Repealed by 16653
25-27.11		Repealed by 16653
25-27A.1	Ord. 7017, 9-30-80	Repealed by 16653
25-27A.2	Ord. 7017, 9-30-80	Repealed by 16653
25-27A.3	Ord. 7017, 9-30-80; Ord. 7854 § 1, 9-6-83	Repealed by 16653
25-27A.4	Ord. 7017, 9-30-80	Repealed by 8630
25-27A.5	Ord. 7017, 9-30-80; Ord. 7039 § 3, 10-28-80; Ord. 7713 § 1, 3-15-83; Ord. 7772 §§ 2, 3, 5-18-83; Ord. 7814 § 7, 7-26-83; Ord. 7829 §§ 6, 7, 8-16-83; Ord. 7867 § 1, 9-13-83	Repealed by 16653
25-27A.6	Ord. 7017, 9-30-80; Ord. 7039 § 1, 10-28-80; Ord. 7772 § 12, 5-18-83	Repealed by 16653
25-27A.7	Ord. 7017, 9-30-80	Repealed by 16653
25-27A.8	Ord. 7017, 9-30-80	Repealed by 16653
25-27A.9	Ord. 7017, 9-30-80	Repealed by 16653
25-27A.10	Ord. 7017, 9-30-80	Repealed by 16653
25-28.1		Repealed by 16653
25-28.2	Ord. 6701 § 10, 9-11-79; Ord. 7735 § 1, 4-12-83	Repealed by 16653
25-28.3	Ord. 7854 § 1, 9-6-83	Repealed by 16653
25-28.4		Repealed by 8630

25-28.5	Ord. 7039 § 3, 10-28-80; Ord. 7574 § 1, 8-17-82; Ord. 7713 § 1, 3-15-83; Ord. 7772 §§ 2, 3, 5-18-83; Ord. 7829 §§ 6, 7, 8-16-83; Ord. 7867 § 1, 9-13-83	Repealed by 16653
25-28.6	Ord. 7039 § 1, 10-28-80; Ord. 7574 § 2, 8-17-82; Ord. 7772 § 10, 5-18-83	Repealed by 16653
25-28.7		Repealed by 16653
25-28.8		Repealed by 16653
25-28.9		Repealed by 16653
25-28.10	Ord. 7721, 3-22-83	Repealed by 16653
25-28.11		Repealed by 16653
25-29.1		Repealed by 16653
25-29.2	Ord. 7735 § 1, 4-12-83	Repealed by 16653
25-29.3	Ord. 7854 § 1, 9-6-83	Repealed by 16653
25-29.4		Repealed by 8630
25-29.5	Ord. 7039 § 3, 10-28-80; Ord. 7574 § 1, 8-17-82; Ord. 7713 § 1, 3-15-83; Ord. 7772 §§ 2, 3, 5-18-83; Ord. 7829 §§ 6, 7, 8-16-83; Ord. 7867 § 1, 9-13-83	Repealed by 16653
25-29.6	Ord. 7039 § 1, 10-28-80; Ord. 7574 § 2, 8-17-82; Ord. 7772 § 10, 5-18-83	Repealed by 16653
25-29.7		Repealed by 16653
25-29.8		Repealed by 16653
25-29.9		Repealed by 16653
25-29.10		Repealed by 16653
25-29.11		Repealed by 16653
25-30.1		Repealed by 16653
25-30.2	Ord. 7735 § 1, 4-12-83	Repealed by 16653
25-30.3	Ord. 7854 § 1, 9-6-83	Repealed by 16653
25-30.4		Repealed by 8630
25-30.5	Ord. 7039 § 3, 10-28-80; Ord. 7574 § 1, 8-17-82; Ord. 7713 § 1, 3-15-83; Ord. 7772 §§ 2, 3, 5-18-83; Ord. 7829 §§ 6, 7, 8-16-83; Ord. 7867 § 1, 9-13-83	Repealed by 16653
25-30.6	Ord. 7039 § 1, 10-28-80; Ord. 7574 § 2, 8-17-82; Ord. 7772 § 10, 5-18-83	Repealed by 16653
25-30.7		Repealed by 16653
25-30.8		Repealed by 16653
25-30.9		Repealed by 16653
25-30.10	Ord. 7721, 3-22-83; Ord. 7611, 10-12-82	Repealed by 16653
25-30.11		Repealed by 16653
25-30.12		Not codified
25-31.1		Repealed by 16653
25-31.2		Repealed by 16653
25-31.3		Repealed by 16653

25-31.4		Repealed by 8630
25-31.5		Repealed by 16653
25-31.6		Repealed by 16653
25-31.7		Repealed by 16653
25-31.8		Repealed by 16653
25-31.9		Repealed by 16653
25-31.10		Repealed by 16653
25-32.1		Repealed by 16653
25-32.2	Ord. 6701 § 11, 9-11-79; Ord. 6820 § 2, 1-15-80; Ord. 7735 § 1, 4-12-83; Ord. 7772 §§ 4, 11, 5-18-83; Ord. 7814 § 3, 7-26-83	Repealed by 16653
25-32.3	Ord. 7706 § 1, 3-8-83; Ord. 7814 § 2, 7-26-83; Ord. 7829 § 8, 8-16-83; Ord. 7854 § 1, 9-6-83; Ord. 7901 § 2, 10-25-83	Repealed by 16653
25-32.4		Repealed by 8630
25-32.5	Ord. 7039 § 3, 10-28-80; Ord. 7705 § 2, 3-8-83; Ord. 7713 § 1, 3-15-83; Ord. 7867 § 1, 9-13-83	Repealed by 16653
25-32.6	Ord. 7039 § 1, 10-28-80	Repealed by 16653
25-32.7		Repealed by 16653
25-32.8	Ord. 6701 § 12, 9-11-79; Ord. 7735 § 8, 4-12-83	Repealed by 16653
25-32.9		Repealed by 16653
25-33.1		Repealed by 16653
25-33.2	Ord. 6701 § 13, 9-11-79; Ord. 6820 § 3, 1-15-80; Ord. 7705 § 3, 3-8-83; Ord. 7735 § 1, 4-12-83; Ord. 7772 §§ 4, 11, 5-18-83; Ord. 7814 § 3, 7-26-83; Ord. 7901 § 3, 10-25-83	Repealed by 16653
25-33.3	Ord. 7513 § 2, 6-8-82; Ord. 7706 § 1, 3-8-83; Ord. 7829 § 8, 8-16-83; Ord. 7854 § 1, 9-6-83	Repealed by 16653
25-33.4		Repealed by 8630
25-33.5	Ord. 7039 § 3, 10-28-80; Ord. 7713 § 1, 3-15-83; Ord. 7867 § 1, 9-13-83	Repealed by 16653
25-33.6	Ord. 7039 § 1, 10-28-80	Repealed by 16653
25-33.7		Repealed by 16653
25-33.8	Ord. 6701 § 14, 9-11-79; Ord. 7735 § 8, 4-12-83	Repealed by 16653
25-33.9	Ord. 6701 § 15, 9-11-79	Repealed by 16653
25-33.10		Repealed by 16653
25-34.1		Repealed by 16653
25-34.2	Ord. 6701 § 16(a)—(c), 9-11-79; Ord. 7705 § 4, 3-8-83; Ord. 7735 § 1, 4-12-83; Ord. 7772 §§ 4, 11, 5-18-83; Ord. 7814 § 3, 7-26-83; Ord. 7901 § 3, 10-25-83	Repealed by 16653
25-34.3	Ord. 7513 § 2, 6-8-82; Ord. 7706 § 2, 3-8-83; Ord. 7829 § 8, 8-16-83; Ord. 7854 § 1, 9-6-83	Repealed by 16653
25-34.4		Repealed by 8630

25-34.5	Ord. 7039 § 3, 10-28-80; Ord.7713 § 1, 3-15-83; Ord. 7867 § 1, 9-13-83	Repealed by 16653
25-34.6	Ord. 7039 § 1, 10-28-80	Repealed by 16653
25-34.7		Repealed by 16653
25-34.8	Ord. 6701 § 17, 9-11-79; Ord. 7735 § 8, 4-12-83	Repealed by 16653
25-34.9	Ord. 6701 § 18, 9-11-79	Repealed by 16653
25-34.10		Repealed by 16653
25-34.11		Not codified
25-35.1		Repealed by 16653
25-35.2	Ord. 6701 § 19(a)—(c), 9-11-79; Ord. 6875, 4-1-80; Ord. 7418 § 1, 1-12-82; Ord. 7511, 6-8-82; Ord. 7705 § 5, 3-8-83; Ord. 7735 § 1, 4-12-83; Ord. 7772 §§ 4, 11, 5-18-83; Ord. 7814 § 3, 7-26-83; Ord. 7901 § 3, 10-25-83	Repealed by 16653
25-35.3	Ord. 7513 § 2, 6-8-82; Ord. 7706 § 2, 3-8-83; Ord. 7829 § 8, 8-16-83; Ord. 7854 § 1, 9-6-83	Repealed by 16653
25-35.4		Repealed by 8630
25-35.5	Ord. 7039 § 3, 10-28-80; Ord. 7713 § 1, 3-15-83; Ord. 7867 § 1, 9-13-83	Repealed by 16653
25-35.6	Ord. 7039 § 1, 10-28-80	Repealed by 16653
25-35.7		Repealed by 16653
25-35.8	Ord. 6701 § 20, 9-11-79; Ord. 6872, 3-25-80; Ord. 7735 § 9, 4-12-83	Repealed by 16653
25-35.9		Repealed by 16653
25-35.10		Repealed by 16653
25-36.1		Repealed by 16653
25-36.2	Ord. 6701 § 21, 9-11-79; Ord. 7418 § 2, 1-12-82; Ord. 7705 § 6, 3-8-83; Ord. 7814 § 1, 7-26-83; Ord. 7901 § 3, 10-25-83	Repealed by 16653
25-36.3	Ord. 7513 § 2, 6-8-82; Ord. 7814 § 2, 7-26-83; Ord. 7829 § 8, 8-16-83; Ord. 7854 § 1, 9-6-83	Repealed by 16653
25-36.4		Repealed by 8630
25-36.5	Ord. 7039 § 3, 10-28-80; Ord. 7713 § 1, 3-15-83; Ord. 7867 § 1, 9-13-83	Repealed by 16653
25-36.6	Ord. 7309 § 1, 10-28-80	Repealed by 16653
25-36.7		Repealed by 16653
25-36.8		Repealed by 16653
25-36.9	Ord. 6927 § 3, 5-27-80; Ord. 7574 § 3, 8-17-82	Repealed by 16653
25-37.1		Repealed by 16653
25-37.2	Ord. 6701 § 22, 9-11-79; Ord. 7039 § 1, 10-28-80; Ord. 7513 § 1, 6-8-82	Repealed by 16653
25-37.3	Ord. 6701 § 23, 9-11-79; Ord. 7513 § 2, 6-8-82; Ord. 7854 § 1, 9-6-83	Repealed by 16653
25-37.4		Repealed by 8630

25-37.5	Ord. 6701 § 24, 9-11-79; Ord. 7039 § 3, 10-28-80; Ord. 7713 § 1, 3-15-83; Ord. 7867 § 1, 9-13-83	Repealed by 16653
25-37.6		Repealed by 16653
25-37.7		Repealed by 16653
25-37.8		Repealed by 16653
25-37.9		Repealed by 16653
25-38.1		Repealed by 16653
25-38.2	Ord. 6701 § 25(a), (b), 9-11-79; Ord. 7513 § 1, 6-8-82	Repealed by 16653
25-38.3	Ord. 7513 § 2, 6-8-82; Ord. 7854 § 1, 9-6-83	Repealed by 16653
25-38.4		Repealed by 8630
25-38.5	Ord. 7713 § 1, 3-15-83; Ord. 7867 § 1, 9-13-83	Repealed by 16653
25-38.6	Ord. 7039 § 1, 10-28-80	Repealed by 16653
25-38.7		Repealed by 16653
25-38.8		Repealed by 16653
25-38.9		Repealed by 16653
25-38.10		Repealed by 16653
25-39.1		Repealed by 16653
25-39.2	Ord. 6701 § 26(a), (b), 9-11-79; Ord. 7039 § 2, 10-28-80	Repealed by 16653
25-39.3	Ord. 7854 § 1, 9-6-83	Repealed by 16653
25-39.4		Repealed by 8630
25-39.5	Ord. 7713 § 1, 3-15-83; Ord. 7867 § 1, 9-13-83	Repealed by 16653
25-39.6		Repealed by 16653
25-39.7		Repealed by 16653
25-39.8		Repealed by 16653
25-39.9		Repealed by 16653
25-40.1	Ord. 6701 § 27, 9-11-79	Repealed by 16653
25-40.2	Ord. 6701 § 28, 9-11-79	Repealed by 16653
25-40.3		Repealed by 16653
25-40.4		Repealed by 16653
25-40.5		Repealed by 16653
25-40.6	Ord. 6701 § 29, 9-11-79; Ord. 6876, 4-1-80	Repealed by 16653
25-40.7		Repealed by 16653
25-40.8		Repealed by 16653
25-40.9		Repealed by 16653
25-40.10		Repealed by 16653
25-40.11	Ord. 7039 § 3, 10-28-80; Ord. 7713 § 1, 3-15-83; Ord. 7867 § 1, 9-13-83	Repealed by 16653
25.40.12		Repealed by 16653
25-41.1		Repealed by 16653
25-41.2		Repealed by 16653
25-41.3		Repealed by 16653
25-41.4	Ord. 7854 § 1, 9-6-83	Repealed by 16653

25-41.5		Repealed by 16653
25-41.6	Ord. 6876, 4-1-80	Repealed by 16653
25-41.7		Repealed by 16653
25-41.8		Repealed by 16653
25-41.9		Repealed by 16653
25-41.10		Repealed by 16653
25-41.11	Ord. 7039 § 3, 10-28-80; Ord. 7713 § 1, 3-15-83; Ord. 7829 § 7, 8-16-83; Ord. 7867 § 1, 9-13-83	Repealed by 16653
25-41.12	Ord. 7814 §§ 4, 5, 7-26-83	Repealed by 16653
25-41.13		Repealed by 16653
25-42.1		Repealed by 16653
25-42.2		Repealed by 16653
25-42.3		Repealed by 16653
25-42.4	Ord. 7854 § 1, 9-6-83	Repealed by 16653
25-42.5		Repealed by 16653
25-42.6	Ord. 6876, 4-1-80	Repealed by 16653
25-42.7		Repealed by 16653
25-42.8		Repealed by 16653
25-42.9		Repealed by 16653
25-42.10		Repealed by 16653
25-42.11	Ord. 7039 § 3, 10-28-80; Ord. 7713 § 1, 3-15-83; Ord. 7829 § 7, 8-16-83; Ord. 7867 § 1, 9-13-83	Repealed by 16653
25-42.12	Ord. 7814 §§ 4, 5, 7-26-83	Repealed by 16653
25-42.13		Repealed by 15642
25-43.1		Repealed by 16653
25-43.2		Repealed by 16653
25-43.3		Repealed by 16653
25-43.4	Ord. 6701 § 30, 9-11-79; Ord. 7814 § 6, 7-26-83; Ord. 7829 §§ 9, 10, 8-16-83; Ord. 7854 § 1, 9-6-83	Repealed by 16653
25-43.5	Ord. 7512, 6-8-82	Repealed by 16653
25-43.6		Repealed by 16653
25-43.7	Ord. 7295 § 2, 8-25-81	Repealed by 16653
25-43.8		Repealed by 16653
25-43.9		Repealed by 16653
25-43.10		Repealed by 16653
25-43.11		Repealed by 16653
25-43.12	Ord. 7039 § 3, 10-28-80; Ord. 7713 § 1, 3-15-83; Ord. 7867 § 1, 9-13-83	Repealed by 16653
25-44.1		Repealed by 16653
25-44.2		Repealed by 16653
25-44.3		Repealed by 16653
25-44.4	Ord. 6701 § 31, 9-11-79; Ord. 7418 § 3, 1-12-82; Ord. 7513 §§ 1, 2, 6-8-82; Ord. 7854 § 1, 9-6-83	Repealed by 16653
25-44.5	Ord. 6876, 4-1-80	Repealed by 16653

25-44.6		Repealed by 16653
25-44.7		Repealed by 16653
25-44.8		Repealed by 16653
25-44.9		Repealed by 16653
25-44.10		Repealed by 16653
25-44.11		Repealed by 16653
25-44.12		Repealed by 16653
25-44.13	Ord. 7039 § 3, 10-28-80; Ord. 7713 § 1, 3-15-83; Ord. 7867 § 1, 9-13-83	Repealed by 16653
25-45		Not codified
25-45.1		Repealed by 16653
25-45.2		Repealed by 16653
25-45.3		Repealed by 16653
25-45.4		Repealed by 16653
25-45.5		Repealed by 16653
25-45.6		Repealed by 16653
25-45.7		Repealed by 16653
25-45.8		Repealed by 16653
25-45.9		Repealed by 16653
25-45.10		Repealed by 16653
25-46—25-59	Reserved	Not codified
25-60.1	Ord. 6701 § 32, 9-11-79; Ord. 7240 § 5, 6-16-81; Ord. 7713 § 2, 3-15-83	Repealed by 16653
25-60.2	Ord. 6701 § 33, 9-11-79; Ord. 6757, 11-6-79; Ord. 6820 § 4, 1-15-80; Ord. 7736, 4-12-83; Ord. 7772 § 9, 5-18-83; Ord. 7829 § 4, 8-16-83	Repealed by 16653
25-61.1		Repealed by 16653
25-61.2	Ord. 6701 § 34, 9-11-79	Repealed by 16653
25-62		Not codified
25-62.1		Repealed by 16653
25-62.2		Repealed by 16653
25-62.3		Repealed by 16653
25-62.4		Repealed by 16653
25-62.5		Repealed by 16653
25-62.6		Repealed by 16653
25-62.7		Repealed by 16653
25-62.8		Repealed by 16653
25-62.9		Repealed by 16653
25-62.10		Repealed by 16653
25-62.11		Repealed by 16653
25-62.12		Repealed by 16653
25-62.13		Repealed by 16304
25-62.14		Repealed by 16653
25-62.15		Repealed by 16653
25-62.16		Repealed by 16653

25-62.17		Not codified
25-62.18		Repealed by 16653
25-62.19		Repealed by 16653
25-62.20		Repealed by 16653
25-62.21		Repealed by 16653
25-62.22		Repealed by 16653
25-62.23		Repealed by 16653
25-62.24		Repealed by 16653
25-62.25		Repealed by 16653
25-62.26		Repealed by 16653
25-62.27		Repealed by 16653
25-62.28		Repealed by 16653
25-62.29		Repealed by 16653
25-62.30		Repealed by 16653
25-62.31		Repealed by 16304
25-62.32		Repealed by 16653
25-62.33		Repealed by 16653
25-62.34		Repealed by 16653
25-62.35		Repealed by 16653
25-62.36		Repealed by 16653
25-63		Repealed by 16653
25-63.1		Repealed by 16653
25-63.2		Repealed by 14566
25-63.3		Repealed by 14566
25-63.4		Repealed by 14566
25-63.5	Ord. 7200, 5-5-81	Repealed by 16653
25-63.6		Repealed by 16653
25-63.7	Ord. 7772 §§ 5, 6, 5-18-83; Ord. 7829 § 5, 8-16-83	Repealed by 16653
25-63.8		Repealed by 16653
25-63.9		Repealed by 16653
25-63.10		Repealed by 16653
25-63.11		Repealed by 16653
25-63.12	Ord. 7867 § 2, 9-13-83	Repealed by 16653
25-63.13	Ord. 7772 § 1, 5-18-83; Ord. 7814 § 8, 7-26-83	Repealed by 16653
25-63.14	Ord. 7829 § 1, 8-16-83	Repealed by 16653
25-63.15		Repealed by 16653
25-64.1		Repealed by 16653
25-64.2	Ord. 6701 § 35, 9-11-79; Ord. 7725, 3-29-83; Ord. 7747 §§ 1, 2, 4-26-83	Repealed by 16653
25-64.3	Ord. 7854 § 2, 9-6-83	Repealed by 16653
25-64.4	Ord. 7724, 3-29-82	Repealed by 16653
25-64.5		Repealed by 16653
25-65.1		Repealed by 16653
25-65.2		Repealed by 16653

25-65.3	Ord. 7295 § 3, 8-25-81	Repealed by 16653
25-66		Repealed by 16653
25-66.1	Ord. 6701 §§ 36, 37, 9-11-79; Ord. 7713 § 3, 3-15-83	Repealed by 16653
25-66.2	Ord. 6701 § 36, 9-11-79	Repealed by 16653
25-66.3	Ord. 6701 § 36, 9-11-79	Repealed by 16653
25-66.4	Ord. 6701 § 36, 9-11-79	Repealed by 16653
25-67	Ord. 6701 § 36, 9-11-79	Repealed by 16653
25-68—25-69	Reserved	Not codified
25-70		Repealed by 16888
25-71		Repealed by 16888
25-72		Repealed by 16888
25-73	Ord. 6819, 1-15-80; Ord. 6927, 5-27-80; Ord. 7713 § 4, 3-15-83; Ord. 7584, 9-6-83	Repealed by 16888
25-74		Repealed by 16888
25-75—25-77	Reserved	Not codified
25-78.1		Repealed by 16653
25-78.2		Repealed by 16653
25-79.1		Repealed by 16653
25-79.2		Repealed by 16653
25-80	Ord. 6701 § 39, 9-11-79; Ord. 6995 § 1, 9-2-80	Repealed by 16653
25-81	Ord. 6701 § 40, 9-11-79; Ord. 6995 § 2, 9-2-80	Repealed by 16653
25-82.1	Ord. 6995 § 3, 9-2-80	Repealed by 16653
25-82.2	Ord. 6995 § 3, 9-2-80	Repealed by 16653
25-82.3	Ord. 6995 § 3, 9-2-80	Repealed by 16653
25-83.1	Ord. 6701 § 42, 9-11-79	Repealed by 16653
25-83.2		Repealed by 16653
25-84.1		Repealed by 16653
25-84.2		Repealed by 16653
25-84.3		Repealed by 16653
25-84.4		Repealed by 16653
25-84.5		Repealed by 16653
25-84.6		Repealed by 16653
25-84.7		Repealed by 16653
25-84.8	Ord. 6701 § 43, 9-11-79	Repealed by 16653
25-84.9		Repealed by 16653
25-84.10		Repealed by 16653
25-84.11		Repealed by 16653
25-84.12		Repealed by 16653
25-84.13		Repealed by 16653
25-84.14		Repealed by 16653
25-84.15	Ord. 6876, 4-1-80; Ord. 7464 § 1, 3-30-82	Repealed by 16653
25-84.16	(Reserved) Ord. 6701 § 44, 9-11-79; Ord. 6995 § 4, 9-2-80	Not codified
25-85		Repealed by 16653

25-85.1		Repealed by 16653
25-85.2	Ord. 6701 § 41, 9-11-79	Repealed by 16653
25-86—25-88	Reserved	Not codified
25-89		Repealed by 16653
25-90		Repealed by 16653
25-91		Repealed by 16653
25-92	Ord. 6701 § 45, 9-11-79	Repealed by 16653
25-93		Repealed by 16653
25-94		Repealed by 16653
25-95		Repealed by 16653
25-96	Ord. 7896, 10-18-83	Repealed by 16653
25-97		Not codified
25-98		Not codified
26-1		Repealed by 8630
26-2		Repealed by 8630
26-3		Repealed by 8630
26-4		Repealed by 8630
26-5		Repealed by 8630
26-6		Repealed by 8630
26-7		Repealed by 8630
26-8		Repealed by 8630
26-9		Repealed by 8630
26-10		Repealed by 8630
26-11		Repealed by 8630
26-12		Repealed by 8630
26-13		Repealed by 8630
26-14		Repealed by 8630
26-15		Repealed by 8630
26-16		Repealed by 8630
26-17		Repealed by 8630
26-18		Repealed by 8630
26-19		Repealed by 8630
26-20		Repealed by 8630
26-21		Repealed by 8630
26-22		Repealed by 8630
26-23		Repealed by 8630
26-24		Repealed by 8630
26-25		Repealed by 8630
26-26		Repealed by 8630
26-27		Repealed by 8630
26-28		Repealed by 8630
26-29		Repealed by 8630
26-30		Repealed by 8630
26-31		Repealed by 8630
26-32		Repealed by 8630

ORDINANCE LIST AND DISPOSITION TABLE

Beginning with Supplement No. 73, this table will be replaced with the Code Comparative Table and Disposition List.

Ordinance Number	
4005	Boards, commissions and committees (Repealed by 16653)
6243	Historic landmark preservation (Repealed by 16653)
6332	Amends Ord. 6243, historic landmark preservation (Repealed by 16653)
6391	Amends Ord. 6243, historic landmark preservation (Repealed by 16653)
6626	Creates El Paso International Airport board; repeals Ord. 5610 (2.28)
7967	Adds prior code §§ 25-20.2(15), 25-21.2(11), 25-22.2(12), 25-23.2(4), 25-24.2(7), 25-25.2(14), 25-26.2(16), 25-27.2(16), 25-27A.2(9), 25-28.2(15), 25-29.2(12), 25-30.2(13), 25-40.4(12), 25-41.4(14) and 25-42.4(14), zoning (Repealed by 16653)
8132	Adds prior code § 20-157.5.1, planting in arterial medians and rights-of-way (12.68)
8136	Venereal disease clinic fee system (9.84)
8137	Amends Ord. 8064, classification and compensation plan (Special)
8138	Amends Ord. 8064, classification and compensation plan (Special)
8139	Adds §§ VI.A.7, IX.D and X.C.7 to; and amends §§ II.B, VI.A.6 and VII.E of Ord. 7714, subdivisions (19.04, 19.24, 19.28, 19.32)
8140	Creates economic development board (2.68)
8141	Amends Ord. 8064, classification and compensation plan (Special)
8142	Amends Ord. 8064, classification and compensation plan (Special)
8143	(Not sent)
8144	Amends Ord. 8065, civil service commission (Not codified)
8145	Amends prior code §§ 17-6(a), 17-7(b) and 17-9(h), city employees' pension fund (2.64)
8146	Adds prior code § 7-8, courts (2.44)
8147	Grants litter receptacle franchise (Special)
8148	Amends prior code § 20-132, vehicle size, weight and classifications (12.40)
8149	Rezone (Special)
8150	Rezone (Special)
8151	Amends Ord. 8064, classification and compensation plan (Special)
8152	Adds prior code § 25-60.1, zoning (Repealed by 16653)
8153	Temporary street closure (Special)
8154	(Not sent)
8155	Alley vacation (Special)
8156	Utility easement vacation (Special)
8157	(Not sent)
8158	(Not sent)
8159	(Not sent)
8160	Grants special privilege for public right-of-way use (Special)
8161	Amends prior code § 20-188, traffic schedules (12.88)

Ordinance Number	
8162	Adds prior code § 11A-18, grading (Not codified)
8163	(Not sent)
8164	(Not sent)
8165	(Not sent)
8166	(Not sent)
8167	(Not sent)
8168	Creates liquor district No. 656-9733 (Special)
8169	Creates liquor district No. 657-10501 (Special)
8170	Adds prior code § 8-2(b)(3), property taxes (Repealed by 14544)
8171	Rehabilitation center lease (Special)
8172	(Not sent)
8173	(Not sent)
8174	Amends Ord. 8064, classification and compensation plan (Special)
8175	Adds prior code § 20-102, parking fees (12.56)
8176	Grants permission to construct tennis courts (Special)
8177	Amends Ord. 8064, classification and compensation plan (Special)
8178	Tax levy (Special)
8179	Amends prior code § 20-100, parking meters (12.56)
8180	Adds prior code § 20-99.3, agricultural worker pickup and discharge (12.44)
8181	Grants special privilege for sidewalk use (Special)
8182	(Not sent)
8183	Creates liquor district No. 659-2700 (Special)
8184	Street rights-of-way, drainage rights-of-way and utility easement vacation (Special)
8185	Amends Ord. 8064, classification and compensation plan (Special)
8186	(Not sent)
8187	(Not sent)
8188	(Not sent)
8189	Amends prior code § 20-188, traffic schedules (12.88)
8190	Creates liquor district No. 660-900 (Special)
8191	(Not sent)
9192	(Not sent)
8193	(Not sent)
8194	Inclusion of land in homestead municipal utility district No. 1 (Special)
8195	Road vacation (Special)
8196	Renumbers subsections (3) — (7) of prior code § 6-14 to be subsections (4) — (8) and adds a new subsection (3), building code (Repealed by 8596)
8197	Amends prior code § 25-35a, zoning (Repealed by 16653)
8198	Rezone (Special)
8199	Creates liquor district No. 661-7440 (Special)
8200	Amends prior code § 17-9(h), city employee's pension fund (2.64)
8201	Amends Ord. 7895, child care advisory board (Repealed by 10145)
8202	Rezone (Special)
8203	Rezone (Special)
8204	Rezone (Special)
8205	Creates liquor district No. 587-10960 (Repealed by 8497)
8206	Adds prior code § 20-183.1, traffic schedules (12.88)

Ordinance Number	
8207	Amends prior code § 20-132(c) and (d), vehicle size, weight and class restrictions (12.40)
8208	Amends prior code Chapter 9, fire code (9.52, 9.60, 9.64, 9.68, 9.72, 9.76)
8209	Amends Ord. 8065, civil service commission (Not codified)
8210	Alley vacation (Special)

Ordinance Number	
8211	Grants special use privilege for portion of Coolidge Way (Special)
8212	Amends Ord. 8064, classification and compensation plan (Special)
8213	Amends Ord. 8064, classification and compensation plan (Special)
8214	Amends Ord. 8064, classification and compensation plan (Special)
8215	Amends Ord. 8064, classification and compensation plan (Special)
8216	Utility easement vacation (Special)
8217	Utility easement vacation (Special)
8218	Creates liquor district No. 662-3143 (Special)
8219	Creates liquor district No. 663-10490 (Special)
8220	(Not sent)
8221	Amends prior code § 20-176.1, traffic prohibited on certain streets (12.64)
8222	Rezone (Special)
8223	Rezone (Special)
8224	Rezone (Special)
8225	Creates liquor district No. 664-6070 (Repealed by 10431)
8226	Amends prior code §§ 25-6 and 25-24, zoning (Repealed by 16653)
8227	Creates liquor district No. 665-6901 (Special)
8228	Utility easement vacation (Special)
8229	Adds prior code §§ 19-17(e), 19-25 and 19-26; and amends prior code §§ 19-17(b), 19-20(c), 19-21(a), 19-23 and 19-24(8) and 19-24(10), excavations (13.08)
8230	Road vacation (Special)
8231	Adds prior code § 11A-18; amends prior code § 11A-17, grading (18.44)
8232	Amends Ord. 8065, civil service commission (Special)
8233	Amends Ord. 8065, civil service commission (Special)
8234	Rezone (Special)
8235	Amends Ord. 8064, classification and compensation plan (Special)
8236	Amends Ord. 8065, civil service commission (Special)
8237	Amends Ord. 8064, classification and compensation plan (Special)
8238	Amends Ord. 8065, civil service commission rules and regulations (Special)
8239	Rezone (Special)
8240	Rezone (Special)
8241	Amends prior code § 20-179(274), (305) and (309), traffic schedules (12.88)
8242	Amends title and subsection (a) of; and repeals subsection (b) of prior code § 20-29.2, parking citations (12.08)
8243	Amends prior code § 20-188, traffic schedules (12.88)
8244	Creates liquor district No. 666-9052 (Special)
8245	Amends Ord. 7766, council meetings (Repealed by 10397)
8246	Amends Ord. 8065, civil service commission rules and regulations (Special)
8247	Amends Ord. 8064, classification and compensation plan (Special)
8248	Amends Ord. 8064, classification and compensation plan (Special)
8249	Amends Ord. 8064, classification and compensation plan (Special)

Ordinance Number	
8250	Amends Ord. 8064, classification and compensation plan (Special)
8251	Amends prior code § 25-63.13(9), zoning (Repealed by 16653)
8252	Rezone (Special)
8253	Rezone (Special)
8254	Rezone (Special)
8255	Rezone (Special)
8256	Amends Ord. 8064, classification and compensation plan (Special)
8257	Emergency medical service system; repeals Ord. 6352 (Not codified)
8258	Rezone (Special)
8259	Amends prior code §§ 11A-5, 11A-6(a), 11A-7, 11A-11(a) and 11A-13, grading (18.44)
8260	Grants special privilege to renovate portions of Pioneer Plaza (Special)
8261	Amends Ord. 8064, classification and compensation plan (Special)
8262	Establishes border relations committee (2.72)
8263	Rezone (Special)
8264	Utility easement vacation (Special)
8265	Amends prior code § 25-43.4(17) — (23), zoning (Repealed by 16653)
8266	Amends prior code §§ 18-1 and 18-2, signs, billboards and billposting (Repealed by 11231)
8267	Amends Ord. 8064, classification and compensation plan (Special)
8268	Amends Ord. 8064, classification and compensation plan (Special)
8269	Amends Ord. 8064, classification and compensation plan (Special)
8270	Amends prior code § 20-187(2), (4) and (5), traffic schedules (12.88)
8271	Amends prior code § 10-4, food and food handling establishments (9.12)
8272	Amends Ord. 8064, classification and compensation plan (Special)
8273	Rezone (Special)
8274	Rezone (Special)
8275	Amends prior code § 20-89(a), loading zones, bus and taxistands (12.48)
8276	Employee suggestion program; repeals Ord. 7145 (Special)
8277	Rezone (Special)
8278	Rezone (Special)
8279	Rezone (Special)
8280	Rezone (Special)
8281	Rezone (Special)
8282	Amends prior code § 20-179, traffic schedules (12.88)
8283	Amends Ord. 8064, classification and compensation plan (Special)
8284	Amends Ord. 8064, classification and compensation plan (Special)
8285	Rezone (Special)
8286	Rezone (Special)
8287	Grants ambulance franchise (Special)
8288	1985 general election (Special)
8289	Bond issuance (Special)
8290	Creates an additional district for the sale of alcoholic beverages (Special)
8291	Creates an additional district for the sale of alcoholic beverages (Special)
8292	Amends Ord. 8064, classification and compensation plan (Special)
8293	Declaration of restrictions and covenants for Butterfield Trail Industrial Park (Not codified)
8294	Amends Ord. 8064, classification and compensation plan (Special)

Ordinance Number	
8295	Street vacation (Special)
8296	Amends prior code Ch. 22, vehicles for hire; repeals Articles I through IX of Ord. 7254 (6.04)
8297	Adds prior code Art. XI-B to Ch. 14, security alarm systems (5.90)
8298	Amends Ord. 8065, civil service commission rules and regulations (Special)
8299	Grants utility easement (Special)
8300	Adds prior code § 20-193(e); amends prior code § 20-193(c) and (d), vehicle and traffic schedules (12.88)
8301	Amends prior code § 3.43, airport use regulations (14.16)
8302	Amends Ord. 8288, elections (Not codified)
8303	Creates an additional district for the sale of alcoholic beverages (Special)
8304	Rezone (Special)
8305	Amends Ord. 8065, civil service commission rules and regulations (Special)
8306	Amends Ord. 8065, civil service commission rules and regulations (Special)
8307	Amends Ord. 8064, classification and compensation plan (Special)
8308	Amends prior code § 20-182(A), parking (12.88)
8309	Amends prior code § 20-179(280), parking (12.88)
8310	Amends prior code § 20-188, traffic (12.88)
8311	Amends prior code § 20-86(a) and (b), loading and unloading (12.48)
8312	Street vacation (Special)
8313	Irrigation pipe placement (Special)
8314	Rezone (Special)
8315	Rezone (Special)
8316	Rezone (Special)
8317	Repeals Ord. 4703 (Repealer)
8318	Rezone (Special)
8319	Rezone (Special)
8320	Amends Ord. 8064, classification and compensation plan (Special)
8321	Amends Ord. 8064, classification and salary plan (Special)
8322	Amends Ord. 8064, classification and salary plan (Special)
8323	Amends Ord. 5603, rezone (Special)
8324	Rezone (Special)
8325	Repeals prior code §§ 25-20.5(12), 25-21.5(9), 25-22.5(9), 25-24.5(13), 25-37.5(3), 25-38.5(4) and 25-39.5(4) (Repealer)
8326	Amends Ord. 7895, child care advisory board (Repealed by 10145)
8327	Amends prior code § 12-41, health and sanitation (9.20)
8328	Amends prior code § 20-179(270), parking (12.88)
8329	Rezone (Special)
8330	Amends prior code §§ 25-23.2, 25-23.6 and 25-23.8, zoning (Repealed by 16653)
8331	Rezone (Repealed by 8856)
8332	Rezone (Special)
8333	Rezone (Special)
8334	Rezone (Special)
8335	Encroachment (Special)
8336	Utility easement vacation (Special)
8337	Utility lease agreement (Special)
8338	Rezone (Special)
8339	Ad hoc street name committee (Repealed by 10145)
8340	Temporary street closure (Special)
8341	Amends prior code § 11A-16.1, grading (18.44)
8342	Rapid transit authority (2.80)

Ordinance Number	
8343	Rezone (Special)
8344	Amends Ord. 8064, classification and compensation plan (Special)
8345	Handicapped grievance committee (2.84)
8346	Amends prior code Art. IV of Ch. 6, electrical code (18.16)
8347	Amends Ord. 8064, classification and compensation plan (Special)
8348	Adds prior code § 17-7(b)(3), pensions (2.64)
8349	Adds prior code § 25-73(1)(m), zoning board of adjustment (Repealed by 16888)
8350	Property owner notification requirement for a zone change (Not codified)
8351	Alley vacation (Special)
8352	Street vacation (Special)
8353	Amends prior code §§ 20-179 and 20-180(I)(1), parking (12.88)
8354	Adds prior code § 22-17(c); amends prior code § 22-12(a)(3) and title of prior code § 22-17, chauffeur's licenses (6.12)
8355	Amends prior code § 20.99.2(a) and (b), stopping, standing and parking (12.44)
8356	Utility easement vacation (Special)
8357	Property easement vacation (Special)
8358	Emergency ordinance extending ambulance service franchise (Expired)
8359	Creates an additional district for the sale of alcoholic beverages (Special)
8360	Rezone (Special)
8361	Rezone (Special)
8362	Rezone (Special)
8363	Amends prior code § 25-82.1(1)(a) and (2)(h), zoning (Repealed by 16653)
8364	Street vacation (Special)
8365	Street vacation (Special)
8366	Rezone (Special)
8367	Rezone (Special)
8368	Rezone (Special)
8369	Rezone (Special)
8370	Creates an additional district for the sale of alcoholic beverages (Special)
8371	Creates an additional district for the sale of alcoholic beverages (Special)
8372	Property easement vacation (Special)
8373	Grants ambulance service franchise (Special)
8374	Amends Ord. 8064, classification and compensation plan (Special)
8375	Amends Ord. 8064, classification and compensation plan (Special)
8376	Creates an additional district for the sale of alcoholic beverages (Special)
8377	Amends prior code § 20-179(282), parking (12.88)
8378	Amends prior code § 20-190(A)(2.2) and (4)(c), speed limits (12.88)
8379	Amends prior code § 20-188, traffic-control (12.88)
8380	Adds prior code § 9-43, firewalking (9.78)
8381	Creates an additional district for the sale of alcoholic beverages (Repealed by 12997)
8382	Temporary street closure (Special)
8383	Amends prior code § 20-183, heavy hauling (12.88)

Ordinance Number	
8384	Rezone (Special)
8385	Rezone (Special)
8386	Creates an additional district for the sale of alcoholic beverages (Special)
8387	Repeals Ord. 7859 (Repealer)
8388	Amends prior code § 20-193(a), stopping, standing and parking (12.88)
8389	Amends prior code § 20-182(A), parking (12.88)
8390	Permits use of specific public right-of-way (Special)
8391	Adds prior code §§ 23.30 through 23.34, water; repeals prior code § 23-8 (15.12)
8392	Repeals Ords. 5016, 5367, 5592 and 7855 (Repealer)
8393	Amends Ord. 8350, property owner notification for a zone change (Not codified)
8394	Creates an additional district for the sale of alcoholic beverages (Special)
8395	Street vacation (Special)
8396	Amends Ord. 8375, classification and compensation plan (Special)
8397	Annexation procedures (Not codified)
8398	Adds prior code §§ 25-41.11(5) and (6), 25-42.11(5) and (6); amends §§ 25-41.4(6) and 25-42.4(6), zoning (Repealed by 16653)
8399	Amends Ord. 8064, classification and compensation plan (Special)
8400	Amends Ord. 8064, classification and compensation plan (Special)
8401	Amends Ord. 8064, classification and compensation plan (Special)
8402	Amends Ord. 8064, classification and compensation plan (Special)
8403	Amends Ord. 8064, classification and compensation plan (Special)
8404	Amends Ord. 8064, classification and compensation plan (Special)
8405	Amends Ord. 8064, classification and compensation plan (Special)
8406	Repeals Ord. 8031 (Repealer)
8407	Emergency building and grading permit issuance (Special)
8408	Rezone (Special)
8409	Rezone (Special)
8410	Rezone (Special)
8411	Rezone (Special)
8412	Amends prior code §§ 25-32.2(9)(d) and (e), 25-33.2(18)(d) and (e), 25-34.2(24)(d) and (e), 25-35.2(35)(d) and (e) and 25-36.2(37)(d) and (e), zoning (Repealed by 16653)
8413	Amends Ord. 8065, civil service commission rules and regulations (Special)
8414	Amends Ord. 8064, classification and compensation plan (Special)
8415	Creates an additional district for the sale of alcoholic beverages (Special)
8416	Rezone (Special)
8417	Rezone (Special)
8418	Rezone (Special)
8419	Rezone (Special)
8420	Rezone (Special)
8421	Rezone (Special)
8422	Creates an additional district for the sale of alcoholic beverages (Special)
8423	Creates an additional district for the sale of alcoholic beverages (Special)
8424	Adds prior code § 25-27A.5(12); amends prior code § 25-27A.5(1), zoning (Repealed by 16653)

Ordinance Number	
8425	Adds prior code § 20-193(f); amends prior code § 20-193(d) and (e), stopping, standing and parking (12.88)
8426	Amends prior code § 20-179, parking (12.88)
8427	Amends Ord. 8370, additional district for the sale of alcoholic beverages; repeals Ords. 5294 and 8387 (Not codified)
8428	Creates an additional district for the sale of alcoholic beverages (Special)
8429	Adds prior code § 23.35, water service inspections (15.12)
8430	Rezone (Special)
8431	Repeals Ord. 5188 (Repealer)
8432	Amends prior code §§ 20-178, 20-179(230), 20-184.1(6), (7), (9) and (17), 20-185(6) and (19), 20-188(243), (277) and (399) and 20-190(A)(2)(w), (3)(v), (3)(vv) and 4(i), traffic (12.88)
8433	Amends Ord. 8425, city council meetings (Repealed by 10397)
8434	Rezone (Special)
8435	Rezone (Special)
8436	Rezone (Special)
8437	Rezone (Special)
8438	Amends prior code § 20-169, vehicle impoundment (12.80)
8439	Rezone (Special)
8440	Rezone (Special)
8441	Amends Ord. 8414, classification and compensation plan (Special)
8442	Rezone (Special)
8443	Amends prior code §§ 11-3(1), garbage and waste (9.04)
8444	Amends Ord. 8064, classification and compensation plan (Special)
8445	Amends Ord. 8064, classification and compensation plan (Special)
8446	Creates an additional district for the sale of alcoholic beverages (Special)
8447	Rezone (Special)
8448	Rezone (Special)
8449	Rezone (Special)
8450	Rezone (Special)
8451	Amends prior code § 20-179(119), parking (12.88)
8452	Rezone (Special)
8453	Rezone (Special)
8454	Rezone (Special)
8455	Rezone (Special)
8456	Rezone (Special)
8457	Rezone (Special)
8458	Rezone (Special)
8459	Lease agreement for use of a specific public right-of-way (Special)
8460	Amends prior code § 11-31(1), junked vehicles (9.08)
8461	Creates an additional district for the sale of alcoholic beverages (Special)
8462	Rezone (Special)
8463	Temporary street closure (Special)
8464	Grants utility easement (Special)
8465	Adds prior code § 5-33, animal poisoning (7.04)
8466	Adds prior code §§ 25-40.11(4), 25-40.12, 25-41.12 and 25-42.13; amends prior code §§ 25-41.4(6) and 25-42.4(6), zoning (Repealed by 16653)
8467	Adds prior code § 25-63.15; amends prior code § 25-6, zoning; repeals prior code § 25-64.3(9) (Repealed by 16653)
8468	Adds prior code §§ 25-20.2(15), 25-21.2(11), 25-22.2(12), 25-24.4(8), 25-25.2(14), 25-26.2(16),

Ordinance Number	
	25-27.2(16), 25-27A.2(9), 25-28.2(15), 25-29.2(12), 25-30.2(13), 25-32.2(35), 25-33.2(46), 25-34.2(53), 25-35.2(71), 25-36.2(38), 25-40.2(12), 25-41.4(14) and 25-42.4(14); amends prior code § 25-6, zoning (Repealed by 16653)
8469	Adds prior code §§ 25-26.2(17), 25-27.2(17), 25-28.2(16), 25-29.2(13), 25-30.2(14), 25-40.2(13) and 25-60.2(2); amends prior code § 25-6, zoning (Repealed by 16653)
8470	Amends Ord. 7428, street vacation (Special)
8471	Cable communications commission (Repealed by 16625)
8472	Rezone (Special)
8473	Rezone (Special)
8474	Creates an additional district for the sale of alcoholic beverages (Special)
8475	Creates an additional district for the sale of alcoholic beverages (Special)
8476	Amends Ord. 8064, classification and compensation plan (Special)
8477	Amends Ord. 8064, classification and compensation plan (Special)
8478	Amends Ord. 8064, classification and compensation plan (Special)
8479	Amends Ord. 8064, classification and compensation plan (Special)
8480	Amends prior code § 20-182(A), parking (12.88)
8481	Amends prior code § 20-190(A)(4), speed limits (12.88)
8482	Lease agreement for use of a specific public right-of-way (Special)
8483	Tax levy (Special)
8484	Rezone (Special)
8485	Amends prior code § 20-177, one-way streets (12.88)
8486	Amends Ord. 8065, civil service commission (Special)
8487	Amends prior code § 20-183, heavy hauling (12.88)
8488	Creates an additional district for the sale of alcoholic beverages (Special)
8489	Lease agreement for use of a specific public right-of-way (Special)
8490	Creates an additional district for the sale of alcoholic beverages (Special)
8491	Creates an additional district for the sale of alcoholic beverages (Special)
8492	Creates an additional district for the sale of alcoholic beverages (Special)
8493	Amends prior code § 20-179, parking (12.88)
8494	Rezone (Special)
8495	Rezone (Special)
8496	Rezone (Special)
8497	Repeals Ord. 8205 (Repealer)
8498	Adds prior code § 22-46(7); amends prior code § 22-35, 22-46(6), 22-55(a), 22-56 and 22-79(b), vehicles for hire (6.16)
8499	Amends Ord. 7166, lease agreement (Special)
8500	Rezone (Special)
8501	Amends Ord. 8064, classification and compensation plan (Special)
8502	Amends Ord. 8064, classification and compensation plan (Special)
8503	Amends Ord. 8064, classification and compensation plan (Special)

Ordinance Number	
8504	Amends Ord. 8064, classification and compensation plan (Special)
8505	Authorizes lease of a specific alley (Special)
8506	Dental clinic fee system (Not codified)
8507	Amends prior code § 7-8, municipal court special expense fee (2.44)
8508	Rezone (Special)
8509	Rezone (Special)
8510	Rezone (Special)
8511	Rezone (Special)
8512	Creates an additional district for the sale of alcoholic beverages (Special)
8513	Amends prior code § 5-33, animal poisoning (7.04)
8514	Rezone (Special)
8515	Rezone (Special)
8516	Rezone (Special)
8517	Rezone (Special)
8518	Rezone (Special)
8519	Amends §§ II, VII.B and X.D.1. of Ord. 7714, subdivisions (19.04, 19.28)
8520	Street vacation (Special)
8521	Amends prior code § 3-14, aircraft landing (14.12)
8522	Amends prior code § 11-3(1), garbage containers (9.04)
8523	Amends prior code § 14-43(1) and (3), charitable solicitations committee (5.24)
8524	Rezone (Special)
8525	Rezone (Special)
8526	Rezone (Special)
8527	Rezone (Special)
8528	Creates an additional district for the sale of alcoholic beverages (Special)
8529	Amends prior code § 20-188, traffic control devices (12.88)
8530	Amends prior code § 20-179, parking (12.88)
8531	Ambulance service operation franchise (Special)
8532	Ambulance service operation franchise (Special)
8533	Amends Ord. 8064, classification and compensation plan (Special)
8534	Amends Ord. 8064, classification and compensation plan (Special)
8535	Amends Ord. 8064, classification and compensation plan (Special)
8536	Amends Ord. 8064, classification and compensation plan (Special)
8537	Amends Ord. 8064, classification and compensation plan (Special)
8538	Rezone (Special)
8539	Rezone (Special)
8540	Rezone (Special)
8541	Rezone (Special)
8542	Rezone (Special)
8543	Creates Greater El Paso Rapid Transit Authority (Not codified)
8544	Property vacation (Special)
8545	Street vacation (Special)
8546	Amends Ord. 8065, civil service commission rules and regulations (Special)
8547	Amends prior code § 20-188, traffic-control devices (12.88)
8548	Rezone (Special)
8549	Rezone (Special)
8550	Amends prior code § 5-33, animal poisoning (7.04)
8551	Rezone (Special)
8552	Rezone (Special)
8553	Rezone (Special)
8554	Amends Ord. 8064, classification and compensation plan (Special)

Ordinance Number	
8555	Amends Ord. 8064, classification and compensation plan (Special)
8556	Amends Ord. 8064, classification and compensation plan (Special)
8557	Street vacation (Special)
8558	Adds prior code subsection (e) to § 3 of Art. XI B of Chapter 14, security alarm systems (5.90)
8559	Rezone (Special)
8560	Amends prior code § 11A-16.1, grading (18.44)
8561	Rezone (Special)
8562	Rezone (Special)
8563	Street vacation (Special)
8564	Alley vacation (Special)
8565	Street vacation (Special)
8566	Rezone (Special)
8567	Rezone (Special)
8568	Rezone (Special)
8569	Amends prior code §§ 25-28.4 and 25-62(B), zoning (Vetoed)
8570	Amends Ord. 6410, annexation (Special)
8571	Adds prior code §§ 3-16.1 and 12-113; amends prior code § 3-10, aircraft (14.12)
8572	Amends prior code §§ 20-190(A)(3), (A)(4)(aa) and 20-190(A)(5), speed limits (12.88)
8573	Amends prior code § 20-190(A)(5)(p), speed limits (12.88)
8574	Amends prior code § 20-190(A)(13), speed limits (12.88)
8575	Street vacation (Special)
8576	Alley vacation (Special)
8577	Permits encroachment of right-of-way (Special)
8578	Amends prior code § 19-5, miscellaneous building regulations (13.20)
8579	Amends prior code § 19-10.1, construction liability insurance (13.16)
8580	Amends prior code § 19-10.1, construction liability insurance (13.16)
8581	Authorizes sale of certain property (Special)
8582	Adds prior code §§ 22-34(f) and 22-78(d) and renumbers existing prior code § 22-78(d) to be 22-78(e), vehicles for hire (6.16)
8583	Amends Ord. 8208, fire code (9.52)
8584	Creates an additional district for the sale of alcoholic beverages (Special)
8585	Amends Ord. 8064, classification and compensation plan (Special)
8586	Amends Ord. 8064, classification and compensation plan (Special)
8587	Amends Ord. 8064, classification and compensation plan (Special)
8588	Amends Ord. 8064, classification and compensation plan (Special)
8589	Rezone (Special)
8590	Adds prior code § 20-182(D)(1), parking (12.88)
8591	Amends prior code § 20-190(A)(4), speed limits (12.88)
8592	Authorizes sale of certain property (Special)
8593	Repeals prior code §§ 13-1, 13-2(3) and 13-3 through 13-8 (Repealer)
8594	Amends Ord. 8459, lease agreement for use of a specific public right-of-way (Special)
8595	Health district laboratory fee system (Not codified)

Ordinance Number	
8596	Amends prior code § 6-14, building code; repeals Ord. 7715 (18.08)
8597	Authorizes sale of certain property (Special)
8598	Rezone (Special)
8599	Environmental engineering fee system (Special)
8600	Adds prior code § 19A-12(c), subdivisions (19.04)
8601	1986 special election (Special)
8602	Creates an additional district for the sale of alcoholic beverages (Special)
8603	Adds prior code §§ 25-28.4(5) and 25-62(B), zoning (Repealed by 16653)
8604	Rezone (Special)
8605	Rezone (Special)
8606	Rezone (Special)
8607	Rezone (Special)
8608	Rezone (Special)
8609	Rezone (Special)
8610	Rezone (Special)
8611	City employee travel procedures (Repealed by 16756)
8612	Amends prior code §§ 14-45, 14-46 and 14-47, soliciting (5.24)
8613	Creates an additional district for the sale of alcoholic beverages (Special)
8614	Rezone (Special)
8615	Rezone (Special)
8616	Rezone (Special)
8617	Amends prior code § 20-179, parking (12.88)
8618	Amends prior code § 20-177, one-way streets (12.88)
8619	Amends Ord. 8064, classification and compensation plan (Special)
8620	Amends Ord. 8064, classification and compensation plan (Special)
8621	Amends Ord. 8064, classification and compensation plan (Special)
8622	Amends Ord. 8064, classification and compensation plan (Special)
8623	Amends Ord. 8064, classification and compensation plan (Special)
8624	Amends Ord. 8064, classification and compensation plan (Special)
8625	Amends Ord. 8064, classification and compensation plan (Special)
8626	Amends Ord. 8064, classification and compensation plan (Special)
8627	Amends Ord. 8064, classification and compensation plan (Special)
8628	Amends Ord. 8446, establishing a district for the sale of alcoholic beverages (Special)
8629	Creates an additional district for the sale of alcoholic beverages (Special)
8630	Amends prior code §§ 25-6, 25-62 and 25-96, signs; repeals prior code §§ 25-20.4, 25-21.4, 25-22.4, 25-23.4, 25-24.4, 25-25.4, 25-26.4, 25-27.4, 25-27A.4, 25-28.4, 25-29.4, 25-30.4, 25-31.4, 25-32.4, 25-33.4, 25-34.4, 25-35.4, 25-36.4, 25-37.4, 25-38.4, 25-39.4, 25-40.7(3)(f), 25-41.4(12)(f), 25-42.4(12)(f), 25-43.4(17)(a), 25-44.4(15)(e) and prior code Ch. 26 (Repealed by 16653)
8631	Creates an additional district for the sale of alcoholic beverages (Special)
8632	Rezone (Special)
8633	Rezone (Special)
8634	Amends prior code § 20-190(A)(3), (A)(4) and (A)(5)(o), speed limits (12.88)
8635	Amends prior code § 20-179, parking (12.88)

Ordinance Number	
8636	Amends prior code § 20-177, one-way streets (12.88)
8637	Amends prior code § 3-14, aircraft (14.12)
8638	Amends prior code § 3-16.1, aircraft (14.12)
8639	Rezone (Special)
8640	Amends prior code § 20-183, heavy hauling (12.88)
8641	Temporary street closure (Special)
8642	Temporary alley closure (Special)
8643	Temporary street closure (Special)
8644	Creates an additional district for the sale of alcoholic beverages (Special)
8645	Creates an additional district for the sale of alcoholic beverages (Special)
8646	Rezone (Special)
8647	Rezone (Special)
8648	Amends prior code § 20-179, parking (12.88)
8649	Amends prior code § 20-190(A)(12), speed limits (12.88)
8650	Amends prior code § 20-177(8), one-way streets (12.88)
8651	Amends prior code § 20-190(A)(8), speed limits (12.88)
8652	Amends prior code Ch. 11, solid waste management (9.04)
8653	Amends Ord. 8064, classification and compensation plan (Special)
8654	Amends Ord. 8064, classification and compensation plan (Special)
8655	Creates an additional district for the sale of alcoholic beverages (Special)
8656	Amends prior code § 18-3, political signs (Repealed by 11231)
8657	Rezone (Special)
8658	Amends prior code §§ 25-65.3 and 25-66.2, zoning (Repealed by 16653)
8659	Amends prior code § 25-24.15, zoning (Repealed by 13830)
8660	Adds prior code § 25-64.2(3); amends prior code § 25-64.2(3), zoning (Repealed by 16653)
8661	Rezone (Special)
8662	Rezone (Special)
8663	Amends prior code § 20-190(A)(15), speed limits (12.88)
8664	Amends prior code § 20-190(A)(3), speed limits (12.88)
8665	Rezone (Special)
8666	Amends Ord. 8064, classification and compensation plan (Special)
8667	Amends Ord. 8064, classification and compensation plan (Special)
8668	Adds prior code § 9-26(k); amends prior code § 9-9(c), fire code (9.68)
8669	Amends prior code § 11-41(B), mechanical collection service fees (9.04)
8670	Amends prior code § 20-190(A)(3) and (A)(4), speed limits (12.88)
8671	Utility easement vacation (Special)
8672	Creates an additional district for the sale of alcoholic beverages (Special)
8673	Amends Ord. 3875, sale of stock, transfer of control and assignment of a cable television system and franchise (Special)
8674	Amends prior code § 20-183, heavy hauling (12.88)
8675	Amends prior code § 20-190(A)(3), speed limits (12.88)

Ordinance Number	
8676	Amends prior code § 20-190(A)(4) and (A)(5), speed limits (12.88)
8677	Adds prior code § 3-85, fuel flowage fees (14.16)
8678	Rezone (Special)
8679	Rezone (Special)
8680	Rezone (Special)
8681	Rezone (Special)
8682	Rezone (Special)
8683	Creates an additional district for the sale of alcoholic beverages (Special)
8684	Bond issuance (Special)
8685	Rezone (Special)
8686	Rezone (Special)
8687	Rezone (Special)
8688	Amends Ord. 8293, declaration of restrictions and covenants for Butterfield Trail Industrial Park (Not codified)
8689	Amends Ord. 8064, classification and compensation plan (Special)
8690	Amends Ord. 8064, classification and compensation plan (Special)
8691	Amends Ord. 8064, classification and compensation plan (Special)
8692	Amends Ord. 8064, classification and compensation plan (Special)
8693	Amends prior code § 20-190(A)(2), speed limits (12.88)
8694	Amends prior code § 20-177, one-way streets (12.88)
8695	Amends Ord. 7953, project and financing plan for reinvestment zone one (Special)
8696	Alley vacation (Special)
8697	Rezone (Special)
8698	Rezone (Special)
8699	Rezone (Special)
8700	Rezone (Special)
8701	Amends prior code Ch. 9, fire code (Not codified)
8702	Bond issuance (Special)
8703	Utility easement vacation (Special)
8704	Permits encroachment of right-of-way (Special)
8705	Creates an additional district for the sale of alcoholic beverages (Special)
8706	Permits encroachment of right-of-way (Special)
8707	Rezone (Special)
8708	Rezone (Special)
8709	Rezone (Special)
8710	Rezone (Special)
8711	Rezone (Special)
8712	Amends prior code § 20-193(A), stopping and standing (12.88)
8713	Amends prior code § 20-179, prohibited parking (12.88)
8714	Amends prior code §§ 9-1(h) and 9-21, fire code (9.52, 9.68)
8715	Alley vacation (Special)
8716	Plumbing and gas codes; repeals Ord. 7140 (Repealed by 11834 and 11835)
8717	Amends prior code § 11-41(A)(3), solid waste collection and transportation fees (9.04)
8718	Amends Ord. 8064, classification and compensation plan (Special)
8719	Amends prior code §§ 20-184(26), 20-184.1(15), 20-184.2(5) and 20-184.5(13), truck routes (Not codified)
8720	Amends Arts. 2 and 6 of Ord. 8392, El Paso mountain committee (Not codified)
8721	Rezone (Special)

Ordinance Number	
8722	Creates an additional district for the sale of alcoholic beverages (Special)
8723	Rezone (Special)
8724	Amends Ord. 8595, health district laboratory fee system (Not codified)
8725	Maternity and child health program fee system (Repealed by 9608)
8726	Amends prior code §§ 12-145(b) and (d) and 12-153(c) (9.48)
8727	Temporary street closure (Special)
8728	Adds prior code § 3-85; amends prior code § 3-82, aircraft (14.12, 14.16)
8729	Adds prior code § 22-4(o) and 22-21(i), (j) and (k); amends prior code §§ 22-17, 22-20, 22-43, 22-44, 22-56(e), 22-65, 22-67 and 22-79(b), vehicles for hire (6.04, 6.12, 6.16)
8730	Rezone (Special)
8731	Adds prior code § 25-45, special residential revitalization district (Repealed by 16653)
8732	Amends prior code § 25-64.3(10), zoning (Repealed by 16653)
8733	Bond election (Special)
8734	Authorizes the sale of land (Special)
8735	Authorizes the sale of land (Special)
8736	Authorizes the sale of land (Special)
8737	Amends prior code § 20-188, traffic-control signs, signals and devices (12.88)
8738	Creates an additional district for the sale of alcoholic beverages (Special)
8739	Creates an additional district for the sale of alcoholic beverages (Special)
8740	Emergency ordinance authorizing the suspension of tolls (Not codified)
8741	Amends plumbing code (18.20)
8742	Amends Ord. 8064, classification and compensation plan (Special)
8743	Amends Ord. 8064, classification and compensation plan (Special)
8744	General obligation bond issuance (Special)
8745	Imposes a temporary moratorium for rezoning of a certain district (Special)
8746	Amends prior code § 19-42, driveways (13.12)
8747	Adds prior code §§ 25-28.3(17) and 25-29.3(14); amends § 25-31.3(2), zoning (Repealed by 16653)
8748	Amends prior code § 20-179, parking (12.88)
8749	Amends prior code §§ 14A-1 and 14A-4, room tax (3.12)
8750	Amends prior code § 20-193, stopping, standing and parking (12.88)
8751	Amends prior code § 20-193, stopping, standing and parking (12.88)
8752	Temporarily changing the method of computation of pension benefits (Special)
8753	Amends prior code § 22-32 and 22-86, vehicles for hire (6.16, 6.20)
8754	Stanton Street International Bridge tolls; repeals Ords. 7276 and 7850 (Repealed by 9551)

Ordinance Number	
8755	Amends prior code § 4-13, alcoholic beverages (5.08)
8756	Verification of flood hazard fees (Not codified)
8757	Amends Ord. 8064, classification and compensation plan (Special)
8758	Creates an additional district for the sale of alcoholic beverages (Repealed by 9782)
8759	Amends Ords. 7052 and 7123, rezone (Special)
8760	Rezone (Special)
8761	Creates an additional district for the sale of alcoholic beverages (Special)
8762	Rezone (Special)
8763	Amends prior code § 25-66.1(1), zoning (Repealed by 16653)
8764	Adds prior code §§ 25-35.2(70), 25-37.2(8), 25-38.2(11) and 25-39.2(10), zoning (Repealed by 16653)
8765	Rezone (Special)
8766	Rezone (Special)
8767	Rezone (Special)
8768	Amends prior code § 20-190, speed limits (12.88)
8769	Amends prior code § 20-190, speed limits (12.88)
8770	Temporary street closure (Special)
8771	Rezone (Special)
8772	Amends prior code § 6-50.60, electrical code; repeals subsection 36 of Ord. 8346 (18.16)
8773	Code adoption (1.01)
8774	Landscaping agreement (Special)
8775	Sign agreement (Special)
8776	Street vacation (Special)
8777	Creates an additional district for the sale of alcoholic beverages (Special)
8778	Amends § 12.88.060(B), parking (12.88)
8779	Landscaping and parking agreement (Special)
8780	Rezone (Special)
8781	Rezone (Special)
8782	Rezone (Special)
8783	Rezone (Special)
8784	Rezone (Special)
8785	Rezone (Special)
8786	Rezone (Special)
8787	Repeals Ord. 2498 (Repealer)
8788	Amends § 12.88.140, traffic control signs, signals and devices (12.88)
8789	Adds § 7.08.010(F), animals (7.08)
8790	Amends Ch. 5.24, charitable solicitations (5.24)
8791	Amends Ord. 8064, classification and compensation plan (Special)
8792	Repeals § 12.88.010(43) (Repealer)
8793	Amends § 12.88.010(11), one-way streets (12.88)
8794	Adds § 9.04.450, solid waste management (9.04)
8795	Amends Ord. 8064, classification and compensation plan (Special)
8796	Amends Ord. 8064, classification and compensation plan (Special)
8797	Amends Ord. 8064, classification and compensation plan (Special)
8798	Amends Ord. 8064, classification and compensation plan (Special)
8799	Amends § 7 of Ord. 6912, public utility regulation board (Not codified)
8800	Drainage vacation (Special)
8801	Lease agreement (Special)
8802	Rezone (Special)
8803	Rezone (Special)

Ordinance Number	
8804	Creates an additional district for the sale of alcoholic beverages (Special)
8805	1986 tax levy
8806	Annexation (Special)
8807	Creates an additional district for the sale of alcoholic beverages (Special)
8808	Amends §§ 14.04.010(B)(1) and 14.16.160(A), aircraft and airports; repeals § 14.16.170 (14.04, 14.16)
8809	Creates departmental property damage review board; repeals Ord. 3177 (Not codified)
8810	Rezone (Special)
8811	Rezone (Special)
8812	Rezone (Special)
8813	Rezone (Special)
8814	Rezone (Special)
8815	Rezone (Special)
8816	Rezone (Special)
8817	Amends § 18.08.060(F), building code (18.08)
8818	Amends § 12.88.150(Q), speed limits (12.88)
8819	Adds §§ 20.02.330, 20.02.331, 20.02.558, 20.02.870, 20.08.201, 20.36.020(36), 20.38.020(46), 20.40.020(53), 20.42.020(72) and 20.62.020(J); amends § 20.64.110, zoning (Repealed by 16653)
8820	Establishes medical services system (Not codified)
8821	Authorizes sale of land (Special)
8822	Temporary street closure (Special)
8823	Amends §§ 18.20.060(J) and 18.24.060(G), plumbing and gas permit fees (18.20, 18.24)
8824	Rezone (Special)
8825	Amends Title 6, vehicles for hire insurance requirements (Expired)
8826	Creates an additional district for the sale of alcoholic beverages (Special)
8827	Adds §§ 20.02.745, 20.08.202, 20.12.040(Q) and 20.14.040(R), zoning (Repealed by 16653)
8828	Adds § 20.18.170; amends §§ 20.18.080, 20.18.090 and 20.18.100, zoning (Repealed by 16653)
8829	Amends § 2.64.120(K), pensions (2.64)
8830	Adds §§ 14.16.190 through 14.16.210, airport transportation shuttle services (14.16)
8831	Amends Ord. 8064, classification and compensation plan (Special)
8832	Amends Ord. 8064, classification and compensation plan (Special)
8833	Amends Ord. 8064, classification and compensation plan (Special)
8834	Amends Ord. 8064, classification and compensation plan (Special)
8835	Amends Ord. 8065, civil service rules (Special)
8836	Cable television street rentals (15.08)
8837	Lease agreement (Special)
8838	Sign agreement (Special)
8839	Amends § 18.08.060(C), building code (18.08)
8840	Rezone (Special)
8841	Rezone (Special)
8842	Rezone (Special)
8843	Rezone (Special)
8844	Amends Ord. 8064, classification and compensation plan (Special)
8845	Amends §§ 18.12.050 and 18.12.090, mechanical code (Repealed by 8904)

Ordinance Number	
8846	Amends §§ 6.16.300 and 6.28.060, vehicles for hire; repeals § 6.16.550(B)(5) (6.16, 6.28)
8847	Franchise agreement (Special)
8848	Rezone (Special)
8849	Adopts amended zoning map (Not codified)
8850	Rezone (Special)
8851	Utility easement vacation (Special)
8852	Amends Ord. 8782, rezone (Special)
8853	Rezone (Special)
8854	Rezone (Special)
8855	Creates an additional district for the sale of alcoholic beverages (Special)
8856	Repeals Ord. 8331 (Repealer)
8857	Rezone (Special)
8858	Amends Ord. 8064, classification and compensation plan (Special)
8859	Amends Ord. 8064, classification and compensation plan (Special)
8860	Adds Ch. 9.77; amends Chs. 9.52, 9.56, 9.60, 9.64, 9.68, 9.72, 9.76 and 9.78, fire prevention (Repealed by 13356)
8861	Street vacation (Special)
8862	Utility easement vacation (Special)
8863	Rezone (Special)
8864	Amends Ord. 8735, authorizing the sale of land (Special)
8865	Temporary one-way street designation (Not codified)
8866	Adds § 18.08.090(B), building code (18.08)
8867	Amends Ch. 18.44, grading (18.44)
8868	Amends Ord. 7390, zoning map (Special)
8869	Adds Ch. 9.50, smoking in public places (9.50)
8870	Amends Ch. 9.44, midwives (9.44)
8871	Amends Ord. 8064, classification and compensation plan (Special)
8872	Authorizes special privilege to use public right-of-way (Special)
8873	Temporary street closure (Special)
8874	Property vacation (Special)
8875	Amends § 12.88.140, traffic-control signs, signals and devices (12.88)
8876	Rezone (Special)
8877	Amends Ord. 8064, classification and compensation plan (Special)
8878	Amends Ord. 8064, classification and compensation plan (Special)
8879	Amends Ord. 8064, classification and compensation plan (Special)
8880	Amends Ord. 8064, classification and compensation plan (Special)
8881	Street vacation (Special)
8882	Property vacation (Special)
8883	Authorizes special privilege to use public right-of-way (Special)
8884	Adds subsections 20.08.230(K), 20.20.030(Q), 20.22.030(Q), 20.24.030(Q), 20.26.030(M), 20.28.030(R), 20.30.030(O), 20.32.030(P), 20.34.030(I), 20.36.030(N), 20.38.030(N), 20.40.030(N), 20.42.030(N), 20.44.030(N), 20.46.030(L), 20.48.030(K), 20.50.030(K), 20.54.040(k)(V), 20.56.040(k)(V), 20.58.040(23)(i) and 20.60.040(14)(l), zoning (Repealed by 16653)
8885	Adds § 5.100.095 and amends § 5.100.040, vendors and solicitors (5.100)

Ordinance Number	
8886	Adds (E) to § 20.67.110, zoning (Repealed by 16653)
8887	Rezone (Special)
8888	Rezone (Special)
8889	Amends Ord. 8064, classification and compensation plan (Special)
8890	Creates an additional district for the sale of alcoholic beverages (Special)
8891	Easement vacation (Special)
8892	Authorizes special privilege to use public right-of-way (Special)
8893	Amends § 14.16.204(C)(4), airport use regulations (14.16)
8894	Rezone (Special)
8895	Rezone (Special)
8896	Deletes paragraphs 27 and 30 from Ord. 8346 (Repealer)
8897	Adds § 6.28.145 and amends §§ 6.28.010, 6.28.030, 6.28.060(C), 6.28.070, 6.28.100 and 6.28.140, sightseeing or charter operations (6.28)
8898	Creates an additional district for the sale of alcoholic beverages (Special)
8899	Authorizes special privilege to use public right-of-way (Repealed by 11849)
8900	Authorizes special privilege to use public right-of-way (Repealed by 11429)
8901	Rezone (Special)
8902	Rezone (Special)
8903	Amends Ord. 8810, rezone (Special)
8904	Mechanical code; repeals Ords. 7990, 8118, 8130 and 8845 (18.12)
8905	Amends Ord. 8064, classification and compensation plan (Special)
8906	Amends Ord. 8064, classification and compensation plan (Special)
8907	Amends Ord. 8064, classification and compensation plan (Special)
8908	Amends Ord. 8064, classification and compensation plan (Special)
8909	Amends Ord. 8064, classification and compensation plan (Special)
8910	Amends Ord. 8064, classification and compensation plan (Special)
8911	Amends Ord. 8064, classification and compensation plan (Special)
8912	Rezone (Special)
8913	Amends § 18.20.060(J), Section A103.7.4(a)(12), plumbing code schedule of permit fees (18.20)
8914	1987 general election (Special)
8915	Adds (I) to § 20.36.040, zoning (Repealed by 16653)
8916	Rezone (Special)
8917	Amends Ord. 8064, classification and compensation plan (Special)
8918	Amends Ord. 8064, classification and compensation plan (Special)
8919	Amends Ord. 8064, classification and compensation plan (Special)
8920	Adds (B)(8) to and amends (D), (I) and (K) of § 14.16.110, airport use regulations (14.16)
8921	Drainage right-of-way vacation (Special)
8922	Authorizes special zoning use (Special)
8923	Creates an additional district for the sale of alcoholic beverages (Special)
8924	Creates an additional district for the sale of alcoholic beverages (Repealed by 13424)
8925	Amends Ord. 5330, city advisory insurance board; repeals Ord. 6843 (Repealed by 10145)

Ordinance Number	
8926	Amends §§ 20.02.044, 20.02.540, 20.08.080 and 20.62.020, zoning (Repealed by 16653)
8927	Amends Ord. 8064, classification and compensation plan (Special)
8928	Rezone (Special)
8929	Rezone (Special)
8930	Rezone (Special)
8931	Authorizes special privilege to use public right-of-way (Special)
8932	Amends § 6.16.470, taxicabs (6.16)
8933	Adds § 18.20.410, plumbing (18.20)
8934	Authorizes special privilege to use public right-of-way (Special)
8935	Right-of-way vacation (Special)
8936	Amends Ch. 18.16, electrical code (18.16)
8937	Rezone (Special)
8938	Special election for submission of charter amendments (Special)
8939	Amends § 5.28.020, dancehalls (5.28)
8940	Amends § 5.72.030, motor vehicle dealers and salesmen (5.72)
8941	Creates an additional district for the sale of alcoholic beverages (Repealed by 10588)
8942	Adds language to § 12.88.060(B), parking (12.88)
8943	Adds language to § 12.88.180(A), tow-away zones (12.88)
8944	Amends § 20.08.230(K), zoning (Repealed by 16653)
8945	Rezone (Special)
8946	Rezone (Special)
8947	Rezone (Special)
8948	Rezone (Special)
8949	Rezone (Special)
8950	Rezone (Special)
8951	Rezone (Special)
8952	Rezone (Special)
8953	Rezone (Special)
8954	Adds Ch. 19.25, subdivisions (19.25)
8955	Amends § 5.36.060(A), gasoline filling stations (5.36)
8956	Amends Ord. 8914, 1987 general election (Special)
8957	Amends Ord. 8938, special election for submission of charter amendments (Special)
8958	Rezone (Special)
8959	Adds §§ 20.34.020(H), 20.46.020(8), 20.48.040(I), 20.50.040(H) and 20.60.040(15), zoning (Repealed by 16653)
8960	Adds §§ 20.02.661 and 20.20.040(T), zoning (Repealed by 16653)
8961	Creates city accessibility advisory committee for the handicapped (Not codified)
8962	Temporary street closure for Downtown El Paso Street Shopping Festival (Special)
8963	Creates an additional district for the sale of alcoholic beverages (Repealed by 9269)
8964	Creates an additional district for the sale of alcoholic beverages (Special)
8965	Amends Ord. 8064, classification and compensation plan (Special)
8966	Amends Ord. 8064, classification and compensation plan (Special)
8967	Amends Ord. 8064, classification and compensation plan (Special)
8968	Amends Ord. 8064, classification and compensation plan (Special)
8969	Flood damage prevention; repeals Ord. 7604 (18.60)
8970	Authorizes land sale (Special)

Ordinance Number	
8971	Authorizes land sale (Special)
8972	Amends Ord. 8064, classification and compensation plan (Special)
8973	Amends Ord. 8064, classification and compensation plan (Special)
8974	Amends Ord. 8064, classification and compensation plan (Special)
8975	Amends Ord. 8064, classification and compensation plan (Special)
8976	Grants cable television franchise (Special)
8977	Amends Ord. 8065, civil service rules and regulations (Special)
8978	Amends Ord. 8065, civil service rules and regulations (Special)
8979	Amends §§ 6.20.050 and 6.20.080, international taxicabs (6.20)
8980	Amends title of Ch. 5.04 and §§ 5.04.010, 5.04.040(B) and 5.12.110, occupation tax (5.04, 5.12)
8981	Amends § 17.16.020(A), housing inspections and certificates (17.16)
8982	Rezone (Special)
8983	Rezone (Special)
8984	Amends § 12.32.060, pedestrians in intersections (12.32)
8985	Amends Ord. 8064, classification and compensation plan (Special)
8986	Amends Ord. 8064, classification and compensation plan (Special)
8987	Amends Ord. 6439, rezone (Special)
8988	Creates an additional district for the sale of alcoholic beverages (Special)
8989	Creates an additional district for the sale of alcoholic beverages (Special)
8990	Street vacation (Special)
8991	Street vacation (Special)
8992	Adopts zoning map supplement, sheet No. 16 (Special)
8993	Rezone (Special)
8994	Rezone (Special)
8995	Amends Ord. 8064, classification and compensation plan (Special)
8996	Amends §§ 7.08.050(D) and (E), 7.08.070(D) and (E), 7.08.110(C), 7.12.020(C) and (F), 7.12.030(D) and 7.16.030, animals (7.08, 7.12, 7.16)
8997	Amends § 17.12.040, trailer courts (17.12)
8998	Amends § 5.96.040, tattooers (Repealed by 15714)
8999	Amends § 5.48.030, laundries (5.48)
9000	Amends §§ 17.08.120(C) and 17.08.220(C), lodginghouses, tenement houses, hotels and motels (17.08)
9001	Amends §§ 9.12.070(C), (D), (F), (H), (I), (J) and (K), 9.12.140, 9.12.210, 9.12.240 and 9.12.250, food and food handling establishments (9.12)
9002	Adds language to § 12.88.150(F) and (I), speed limits (12.88)
9003	Adds § 12.88.040(J), parking (12.88)
9004	Temporarily amends § 12.88.010, one-way streets (Not codified)
9005	Temporarily amends § 12.88.030, parking (Not codified)
9006	Deletes (32) from § 12.88.010, one-way streets (12.88)
9007	Temporarily amends § 12.88.030, parking (Not codified)
9008	Temporarily amends § 12.88.110, special truck routes (Not codified)
9009	Temporarily amends § 12.88.100, local truck routes (Not codified)

Ordinance Number	
9010	Temporarily amends § 12.88.090, through truck routes (Not codified)
9011	Temporarily amends § 12.88.080, general truck routes (Not codified)
9012	Temporarily amends § 12.88.120, special truck routes (Not codified)
9013	Creates an additional district for the sale of alcoholic beverages (Special)
9014	Creates an additional district for the sale of alcoholic beverages (Special)
9015	Amends Ord. 8064, classification and compensation plan (Special)
9016	Amends Ord. 8064, classification and compensation plan (Special)
9017	Amends Art. I of Ch. 9.68, §§ 9.68.010 through 9.68.080, explosives and ammunition (9.68)
9018	Amends §§ 5.04.030, 5.04.050 and 5.04.060(A), occupation tax (5.04)
9019	Adds language to § 7.08.010(F), animals (7.08)
9020	Adds § 12.08.220(A)(15), impounding vehicles (Repealed by 10971)
9021	Street vacation (Repealed by 12623)
9022	Rezone (Special)
9023	Authorizes special privilege to use public right-of-way (Special)
9024	Amends Ord. 8064, classification and compensation plan (Special)
9025	Amends Ord. 8064, classification and compensation plan (Special)
9026	Amends Ord. 8064, classification and compensation plan (Special)
9027	Amends Ord. 8064, classification and compensation plan (Special)
9028	Street vacation (Special)
9029	Amends § 12.88.030, parking (12.88)
9030	Amends § 2.64.120 by amending the introductory paragraph and subsections (B), (C), (D), (E), (G) and (H), deleting subsection (I) and relettering subsections (J) and (K) to be (I) and (J), city employees' pension fund (2.64)
9031	Adds subsection (F) to and amends the introductory paragraph and the second paragraph of subsection (B) of § 2.64.140, city employees' pension fund (2.64)
9032	Creates an additional district for the sale of alcoholic beverages (Special)
9033	Rezone (Special)
9034	Rezone (Special)
9035	Annexation (Special)
9036	Amends § 6.16.230, taxicabs (6.16)
9037	Utility easement vacation (Special)
9038	Lease agreement (Special)
9039	Emergency management (2.48)
9040	Creates an additional district for the sale of alcoholic beverages (Special)
9041	Utility easement vacation (Special)
9042	Amends § 14.16.150, 14.20.050 and 14.20.220, aircraft and airports (14.16, 14.20)
9043	Easement vacation (Special)
9044	Conveyance of land (Special)
9045	Rezone (Special)
9046	Rezone (Special)
9047	Repeals § 10.16.060 (Repealer)
9048	Amends § 501 of the Standard Building code (18.08)
9049	Street vacation (Special)

Ordinance Number	
9050	Authorizes issuance and sale of general obligation bonds (Special)
9051	Amends §§ 9.04.400(A)(1) and (A)(2), solid waste management (9.04)
9052	Adds § 2.04.040, administration and personnel (2.04)
9053	Creates an additional district for the sale of alcoholic beverages (Special)
9054	Amends Ord. 8064, classification and compensation plan (Special)
9055	Amends Ord. 8064, classification and compensation plan (Special)
9056	Amends Ord. 8064, classification and compensation plan (Special)
9057	Amends § 12.88.030, parking (12.88)
9058	Amends § 12.88.030, parking (12.88)
9059	Amends § 12.88.140, traffic-control signals (12.88)
9060	Rezone (Special)
9061	Rezone (Special)
9062	Rezone (Special)
9063	Rezone (Special)
9064	Amends Ord. 8724, HIV antibody test fees (Not codified)
9065	Amends § 18.16.800(A) and 18.16.810(C), electrical code (18.16)
9066	Rezone (Special)
9067	Amends § 12.88.060(B), parking (12.88)
9068	Rezone (Special)
9069	Amends § 6.32.010(B), limousine services (6.32)
9070	Utility easement vacation (Special)
9071	Temporary alley closure (Not codified)
9072	Amends § 20.62.020(I), zoning (Repealed by 16653)
9073	Creates an additional district for the sale of alcoholic beverages (Special)
9074	Authorizes landscape development and maintenance (Special)
9075	Amends § 18.16.850, electrical code (18.16)
9076	Rezone (Special)
9077	Rezone (Special)
9078	Rezone (Special)
9079	Rezone (Special)
9080	Imposes sales tax upon telecommunications services (3.08)
9081	Rezone (Special)
9082	Rezone (Special)
9083	Rezone (Special)
9084	Rezone (Special)
9085	Rezone (Special)
9086	Rezone (Special)
9087	Amends § 18.20.310, plumbing code (18.20)
9088	Authorizes lease agreement (Special)
9089	Adds § 9.12.070(L), food and food handling establishments (9.12)
9090	Amends Ord. 8064, classification and compensation plan (Special)
9091	Amends Ord. 8064, classification and compensation plan (Special)
9092	Amends Ord. 8065, civil service rules and regulations (Special)
9093	Amends Ord. 8065, civil service rules and regulations (Special)
9094	Street vacation (Special)
9095	Creates an additional district for the sale of alcoholic beverages (Special)

Ordinance Number	
9096	Amends Ords. 5269 and 6183, architect-engineer selection committee (Not codified)
9097	Amends § 12.32.060, pedestrians (12.32)
9098	Amends § 20.08.320, zoning (Repealed by 16653)
9099	Amends §§ 20.08.140 and 20.08.201, zoning (Repealed by 16653)
9100	Amends § 20.04.551, zoning (Repealed by 16653)
9101	Adds §§ 20.02.606, 20.02.618 and 20.66.340(E) and (F); amends §§ 20.66.300(B)(1), (B)(4), (E)(2) and (E)(3), 20.66.310(I) and 20.66.330.3(A) and (B), zoning (Repealed by 16653)
9102	Rezone (Special)
9103	Rezone (Special)
9104	Rezone (Special)
9105	Amends § 9.12.070(J), food and food handling establishments (9.12)
9106	Creates an additional district for the sale of alcoholic beverages (Special)
9107	Amends §§ 18.08.020 and 18.08.130, building code (18.08)
9108	Amends § 6.16.460, taxicab stands (6.16)
9109	Adds § 9.12.875, food and food handling establishments (9.12)
9110	Amends § 9.04.420, solid waste management disposal fees (9.04)
9111	Amends § 12.44.180(B)(9), stopping, standing and parking (12.44)
9112	Street vacation (Special)
9113	Rezone (Special)
9114	Rezone (Special)
9115	Amends Ord. 9066, rezone (Special)
9116	Authorizes use of public right-of-way (Special)
9117	Authorizes use of public right-of-way (Special)
9118	Rezone (Special)
9119	Adds §§ 20.08.220(C)(39) and (C)(40), zoning (Repealed by 16653)
9120	Amends Ord. 8064, classification and compensation plan (Special)
9121	Amends Ord. 8064, classification and compensation plan (Special)
9122	Amends Ord. 8065, civil service rules and regulations (Special)
9123	Amends Ord. 8064, classification and compensation plan (Special)
9124	Amends § 6.12.110, chauffeur's licenses (6.12)
9125	Street vacation (Special)
9126	Rezone (Special)
9127	Rezone (Special)
9128	Rezone (Special)
9129	Authorizes lease agreement (Special)
9130	Amends § 9.44.180, midwives (9.44)
9131	Adds §§ 9.12.590(E) and 9.12.600(E), food and food handling establishments (9.12)
9132	Adds § 17.12.130(D); amends § 17.12.130(A), trailer courts (17.12)
9133	Rezone (Special)
9134	Rezone (Special)
9135	Rezone (Special)
9136	Rezone (Special)
9137	Street vacation (Special)
9138	Authorizes sale of city-owned land (Special)

Ordinance Number	
9139	Amends Ord. 8064, classification and compensation plan (Special)
9140	Amends § 12.88.150(F), speed limits (12.88)
9141	Amends § 12.88.140, traffic-control signs, signals and devices (12.88)
9142	Abolishes Greater El Paso Rapid Transit Authority (Special)
9143	Building code amendment (18.08)
9144	Amends Ord. 8720, El Paso mountain committee (Special)
9145	Adds § 3.04.090, property taxes (3.04)
9146	Rezone (Special)
9147	Rezone (Special)
9148	Annexation (Special)
9149	Approves temporary street closure (Special)
9150	Approves temporary street closure (Special)
9151	Adds § 14.16.021 , aircraft and airports (14.16)
9152	Amends § 14.16.110, aircraft and airports (14.16)
9153	Utility easement vacation (Special)
9154	Amends § 12.88.150(F), speed limits (12.88)
9155	Creates an additional district for the sale of alcoholic beverages (Repealed by 13423)
9156	Amends Ord. 8065, civil service rules and regulations (Special)
9157	Amends Ord. 8064, classification and compensation plan (Special)
9158	Amends Ord. 8065, civil service rules and regulations (Special)
9159	Rezone (Special)
9160	Rezone (Special)
9161	Rezone (Special)
9162	Rezone (Special)
9163	Rezone (Special)
9164	Rezone (Special)
9165	Rezone (Special)
9166	Creates mass transit department (Not codified)
9167	Amends Ord. 8820, medical service system advisory board (Not codified)
9168	Amends § 12.40.130, unsecured loads on vehicles (12.40)
9169	Rezone (Special)
9170	Adds §§ 20.02.123, 20.02.542, 20.02.626, 20.02.646, 20.02.802, Ch. 20.45 and § 20.62.020(K); amends §§ 20.02.140 and 20.02.620, zoning (Repealed by 16653)
9171	Rezone (Special)
9172	Creates an additional district for the sale of alcoholic beverages (Special)
9173	Amends § 7.12.020, animal registration (7.12)
9174	Establishes overseas travel immunization and vaccination fees (Special)
9175	Amends § 3.12.060, hotel room tax proceeds (3.12)
9176	Amends §§ 13.28.020, 13.28.030(A) and (B), 13.28.040 and 13.28.050, sound amplifying devices (13.28)
9177	Amends §§ 13.32.020, 13.32.030(A)and (B), 13.32.040 and 13.32.050, parades and demonstrations (13.32)
9178	Creates an additional district for the sale of alcoholic beverages (Special)
9179	Creates an additional district for the sale of alcoholic beverages (Special)

Ordinance Number	
9180	Street vacation (Special)
9181	Rezone (Special)
9182	Rezone (Special)
9183	1987 tax levy (Special)
9184	Amends Ord. 8064, classification and compensation plan (Special)
9185	Rezone (Special)
9186	Authorizes parking privilege (Repealed by 9825)
9187	Creates an additional district for the sale of alcoholic beverages (Special)
9188	Amends §§ 2.64.030(A), 2.64.070, 2.64.080(A) and 2.64.110, city employees pension fund (2.64)
9189	Authorizes alley encroachment (Special)
9190	Rezone (Special)
9191	Rezone (Special)
9192	Rezone (Special)
9193	Amends Ord. 8064, classification and compensation plan (Special)
9194	Adds § 12.56.051, parking meters (12.56)
9195	Amends § 6.12.020(A)(2), chauffeur's licenses (6.12)
9196	Rezone (Special)
9197	Rezone (Special)
9198	Rezone (Special)
9199	Rezone (Special)
9200	Rezone (Special)
9201	Amends Ord. 8064, classification and compensation plan (Special)
9202	Amends Ord. 8064, classification and compensation plan (Special)
9203	Amends Ord. 8064, classification and compensation plan (Special)
9204	Authorizes temporary street closure (Special)
9205	Rezone (Special)
9206	Amends Ord. 8064, classification and compensation plan (Special)
9207	Authorizes landscape development and maintenance (Special)
9208	Authorizes temporary street closure (Special)
9209	Adds § 6.12.020(C), chauffeur's licenses (6.12)
9210	Adds § 9.04.090(C), solid waste management (9.04)
9211	Authorizes landscape development and maintenance (Special)
9212	Authorizes public right-of-way encroachment (Special)
9213	Rezone (Special)
9214	Street vacation (Special)
9215	Rezone (Special)
9216	Rezone (Special)
9217	Rezone (Special)
9218	Alley vacation (Special)
9219	Adds §§ 18.12.035, 18.20.045 and 18.24.045, buildings and construction (18.12, 18.20, 18.24)
9220	Adds § 12.44.200(C); amends §§ 12.44.180 and 12.44.200, stopping, standing and parking (12.44)
9221	Creates an additional district for the sale of alcoholic beverages (Special)
9222	Amends Ord. 8064, classification and compensation plan (Special)
9223	Amends Ord. 8064, classification and compensation plan (Special)
9224	Amends Ord. 8064, classification and compensation plan (Special)
9225	Amends Ord. 8064, classification and compensation plan (Special)
9226	Amends Ord. 8064, classification and compensation plan (Special)
9227	Amends Ord. 8064, classification and compensation plan (Special)
9228	Rezone (Special)
9229	Rezone (Special)

Ordinance Number	
9230	Rezone (Special)
9231	Rezone (Special)
9232	Rezone (Special)
9233	Rezone (Special)
9234	Annexation (Special)
9235	Emergency ordinance extending certain franchise (Special)
9236	Emergency ordinance extending certain franchise (Special)
9237	Amends § 9.04.060(A), refuse containers (9.04)
9238	Authorizes use of public right-of-way (Special)
9239	Authorizes temporary alley closure (Special)
9240	Authorizes landscape development and maintenance (Special)
9241	Rezone (Special)
9242	Rezone (Special)
9243	Amends § 12.88.150(F), speed limits (12.88)
9244	Amends § 12.88.070, prohibited heavy hauling (12.88)
9245	Amends § 12.88.060, parking (12.88)
9246	Adds § 12.88.030(83)(c), parking (12.88)
9247	Amends § 12.88.030, parking (12.88)
9248	Amends § 12.88.140, traffic-control devices (12.88)
9249	Authorizes sale of certain property(Special)
9250	Amends Ord. 8064, classification and compensation plan (Special)
9251	Amends Ord. 8064, classification and compensation plan (Special)
9252	Amends Ord. 8065, civil service rules and regulations (Special)
9253	Amends Ord. 8065, civil service rules and regulations (Special)
9254	Authorizes land conveyance (Special)
9255	Adds § 19.08.020(A)(3); amends §§ 19.28.170 and 19.32.110(A), subdivisions (19.08, 19.28, 19.32)
9256	Rezone (Special)
9257	Rezone (Special)
9258	Rezone (Special)
9259	Creates an additional district for the sale of alcoholic beverages (Special)
9260	Amends ambulance franchise ordinance (Special)
9261	Amends ambulance franchise ordinance (Special)
9262	Amends project and financing plan for reinvestment zone one of the tax increment district No. 1 (Repealed by 9314)
9263	Rezone (Special)
9264	Rezone (Special)
9265	Rezone (Special)
9266	Rezone (Special)
9267	Grants franchise for litter receptacles (Special)
9268	Repeals Ord. 8052 (Repealer)
9269	Repeals Ord. 8963 (Repealer)
9270	Amends § 20.08.290, zoning (Repealed by 16653)
9271	Amends Ord. 8160, special privilege for the use of a public right-of-way (Special)
9272	Authorizes special privilege to use a portion of public right-of-way (Special)
9273	Adds Ch. 9.74, incinerators; repeals §§ 9.04.260(D), 9.04.320(F) and 9.04.410(G) (9.74)

Ordinance Number	
9274	Amends §§ 20.66.050, 20.66.080, 20.66.150 and 20.66.260 through 20.66.330, zoning (Repealed by 16653)
9275	Adds § 20.02.702.1, zoning (Repealed by 16653)
9276	Amends project and financing plan for reinvestment zone one to the tax increment district No. 1 (Not codified)
9277	Amends § 12.88.180, stopping and standing (12.88)
9278	Amends § 12.88.030, stopping and standing (12.88)
9279	Amends Ord. 8064, classification and compensation plan (Special)
9280	Amends Ord. 8064, classification and compensation plan (Special)
9281	Amends Ord. 8064, classification and compensation plan (Special)
9282	Amends Ord. 8064, classification and compensation plan (Special)
9283	Creates an additional district for the sale of alcoholic beverages (Special)
9284	Rezone (Special)
9285	Rezone (Special)
9286	Rezone (Special)
9287	Amends § 12.04.110, vehicles and traffic (12.04)
9288	Amends § 12.88.140, traffic-control devices (12.88)
9289	Amends Ord. 9259, creation of an additional district for the sale of alcoholic beverages (Special)
9290	Authorizes special privilege to use a portion of public right-of-way (Special)
9291	Special privilege for use of certain drainage easement (Special)
9292	Amends § 13.04.070, sidewalk construction (13.04)
9293	Amends § 13.04.020, sidewalk specifications (13.04)
9294	Special privilege for erection of a sign on public right-of-way (Special)
9295	Amends Ord. 8065, civil service rules and regulations (Special)
9296	Amends Ord. 8065, civil service rules and regulations (Special)
9297	Rezone (Special)
9298	Rezone (Special)
9299	Designates reinvestment zone A (Special)
9300	Lease of certain property (Special)
9301	Adds subsection to § 9.04.030 and amends § 9.04.060(A), solid waste management (9.04)
9302	Rezone (Special)
9303	Rezone (Special)
9304	Rezone (Special)
9305	Rezone (Special)
9306	Rezone (Special)
9307	Rezone (Special)
9308	Franchise (Special)
9309	Sale of city real property (Special)
9310	Amends Ord. 8064, classification and compensation plan (Special)
9311	Amends Ord. 8064, classification and compensation plan (Special)
9312	Amends Ord. 8064, classification and compensation plan (Special)
9313	Creates an additional district for the sale of alcoholic beverages (Special)
9314	Repeals Ord. 9262 (Repealer)
9315	Rezone (Special)
9316	Rezone (Special)
9317	Rezone (Special)
9318	Rezone (Special)
9319	Referendum election on police collective bargaining issues (Special)

Ordinance Number	
9320	Amends Ord. 8065, civil service rules and regulations (Special)
9321	Amends Ord. 8064, classification and compensation plan (Special)
9322	Amends Ord. 8064, classification and compensation plan (Special)
9323	Creates an additional district for the sale of alcoholic beverages (Special)
9324	Easement vacation (Special)
9325	Authorizes temporary road closure (Special)
9326	Amends § 20.08.080, zoning (Repealed by 16653)
9327	Rezone (Special)
9328	Adds § 2.04.030, administration and personnel (2.04)
9329	Creates an additional district for the sale of alcoholic beverages (Special)
9330	Adds subsection to § 12.44.180(B), stopping, standing and parking (12.44)
9331	Rezone (Special)
9332	Rezone (Special)
9333	Adds subsection to § 12.88.030, prohibited parking (12.88)
9334	Special privilege for installation of drive-up receptacle for telephone bill payments (Special)
9335	Special privilege for use of portion of certain alley to provide a drive-thru service lane (Special)
9336	Special privilege to landscape certain public right-of-way (Special)
9337	Easement vacation (Special)
9338	Amends (11) of 12.88.010, one-way streets (Repealed by 9353)
9339	Amends Ord. 8064, classification and compensation plan (Special)
9340	Amends Ord. 8064, classification and compensation plan (Special)
9341	Amends Ord. 8064, classification and compensation plan (Special)
9342	Amends Ord. 8064, classification and compensation plan (Special)
9343	Rezone (Special)
9344	Rezone (Special)
9345	Rezone (Special)
9346	Rezone (Special)
9347	Rezone (Special)
9348	Rezone (Special)
9349	Special privilege for use of portion of certain sidewalk (Special)
9350	Amends Ord. 6639, public transit board (Not codified)
9351	Designates reinvestment zone B (Special)
9352	Rezone (Special)
9353	Repeals Ord. 9338 (Repealer)
9354	Adds section to Ch. 18.08, building code amendments (18.08)
9355	Amends § 18.08.060(E), building code amendments (18.08)
9356	Amends § 18.08.040, building code amendments (18.08)
9357	Amends § 18.08.090, building code amendments (18.08)
9358	Amends Ch. 17.04, housing code (17.04)
9359	Authorizes temporary road closure (Special)
9360	Amends § 5.52.010(B), "massage" defined (Repealed by 15946)
9361	Creates an additional district for the sale of alcoholic beverages (Repealed by13422)
9362	Creates an additional district for the sale of alcoholic beverages (Special)
9363	Rezone (Special)
9364	Rezone (Special)

Ordinance Number	
9365	Rezone (Special)
9366	Rezone (Special)
9367	Rezone (Special)
9368	Adds § 13.24.040(E), city parks and recreation areas (13.24)
9369	Amends (11) of § 12.88.010, one-way streets (12.88)
9370	Adds subsection to § 12.88.010, one-way streets (12.88)
9371	Adds subsection to § 12.88.070, heavy hauling prohibited (12.88)
9372	Temporary amendment of § 12.88.030, prohibited parking (Not codified)
9373	Temporary amendment of § 12.88.110, special truck routes (Not codified)
9374	Temporary amendment of § 12.88.100, local truck routes (Not codified)
9375	Temporary amendment of § 12.88.080, truck routes (Not codified)
9376	Temporary amendment of § 12.88.120, special truck routes (Not codified)
9377	Temporary amendment of § 12.88.010, one-way streets (Not codified)
9378	Rezone (Special)
9379	Amends Ord. 8064, classification and compensation plan (Special)
9380	Amends Ord. 8064, classification and compensation plan (Special)
9381	Amends Ord. 8064, classification and compensation plan (Special)
9382	Amends Ord. 8064, classification and compensation plan (Special)
9383	Amends Ord. 8064, classification and compensation plan (Special)
9384	Amends Ord. 8064, classification and compensation plan (Special)
9385	Easement vacation (Special)
9386	Easement vacation (Special)
9387	Amends Ord. 9332, rezone (Special)
9388	Amends project and financing plan for reinvestment zone I (Special)
9389	Authorizes temporary road closure (Special)
9390	Amends Ord. 8064, classification and compensation plan (Special)
9391	Amends Ord. 9265, rezone (Special)
9392	Rezone (Special)
9393	Rezone (Special)
9394	Rezone (Special)
9395	Amends Ch. 18.08 by adding amendment to UBC § 105.1, building code amendments (18.08)
9396	Adds subsections to § 12.88.140, location of traffic control signals and devices (12.88)
9397	Amends Ord. 9174, overseas travel immunization and vaccination fees (Special)
9398	Amends Ch. 9.48, swimming pools (9.48)
9399	Creates an additional district for the sale of alcoholic beverages (Special)
9400	Temporary alley closure (Special)
9401	Amends § 20.02.764, zoning (Repealed by 16653)
9402	Rezone (Special)
9403	Special privilege to landscape portion of public right-of-way (Special)
9404	Amends Ord. 8064, classification and compensation plan (Special)
9405	Special privilege to install sand trap in portion of certain public right-of-way (Special)

Ordinance Number	
9406	Alley vacation (Special)
9407	Authorizes certain correction warranty deed (Special)
9408	Amends §§ 17.02.052 and 17.02.584, zoning (17.02)
9409	Amends § 20.66.300, zoning (Repealed by 16304)
9410	Rezone (Special)
9411	Rezone (Special)
9412	Rezone (Special)
9413	Adds subsection to (F) of and deletes (27) from (G) of § 12.88.150, speed limits (12.88)
9414	Special privilege for construction of telecommunications system using public right-of-way (Special)
9415	Creates an additional district for the sale of alcoholic beverages (Special)
9416	Amends project and financing plan for reinvestment zone I (Special)
9417	Leases certain property (Special)
9418	Special privilege to landscape portion of public right-of-way (Special)
9419	Easement vacation (Special)
9420	Adds (K)(3) to and amends (E) and (K)(1) of § 20.62.020, zoning (Repealed by 16653)
9421	Rezone (Special)
9422	Rezone (Special)
9423	Amends Ord. 8065, civil service rules and regulations (Special)
9424	Amends Ord. 8065, civil service rules and regulations (Special)
9425	Amends Ord. 8064, classification and compensation plan (Special)
9426	Amends Ord. 8064, classification and compensation plan (Special)
9427	Amends Ord. 8064, classification and compensation plan (Special)
9428	Deletes (392), (393) and (394) from § 12.88.140, location of traffic control signals and devices (12.88)
9429	Amends Ord. 9208, temporary street closures (Special)
9430	Amends § 1.08.010, 5.108.070, 9.40.140, 9.50.140, 10.24.030(B), 12.84.010, 12.88.190(B), 13.04.020(B), 13.08.180, 13.12.260, 13.24.050(C), 14.20.250(C), 17.12.150 and 17.20.150, penalties (1.08, 5.108, 9.40, 9.50, 10.24, 12.84, 12.88, 13.08, 13.12, 13.24, 14.20, 17.12, 17.20)
9431	Amends § 9.04.390, 9.12.860(C), 9.12.890, 9.20.080, 9.20.170, 9.24.050, 9.44.340, 9.48.420, 9.52.310, 9.78.030, 18.08.100, 18.12.140(H), 18.16.640, 18.20.090, 18.24.060(I), 18.36.040, 18.44.240, 19.08.130 and 20.68.010(A), penalties (9.04, 9.12, 9.20, 9.24, 9.48, 9.52, 9.78, 18.08, 18.12, 18.16, 18.20, 18.24, 18.36, 18.44, 19.08)
9432	Rezone (Special)
9433	Rezone (Special)
9434	Amends description of Zone A in § 12.88.130(A), parking meter zones (12.88)
9435	Amends § 12.88.010, one-way streets (12.88)
9436	Amends (F)(35) and (G)(16) of § 12.88.150, speed limits (12.88)
9437	Amends § 3.32.040, disposition of unclaimed property and weapons (3.32)
9438	Rezone (Special)

Ordinance Number	
9439	Rezone (Special)
9440	Bond issuance (Special)
9441	Bond issuance (Special)
9442	Amends Ord. 8064, classification and compensation plan (Special)
9443	Amends Ord. 8064, classification and compensation plan (Special)
9444	Amends Ord. 8064, classification and compensation plan (Special)
9445	Amends Ord. 8064, classification and compensation plan (Special)
9446	Rezone (Special)
9447	Rezone (Special)
9448	Adds Ch. 18.21, private sewage facilities (18.21)
9449	Amends §§ 18.20.020, 18.20.110 and 18.20.120, plumbing code (18.20)
9450	Adds subsections to § 12.88.030, prohibited parking (12.88)
9451	Creates an additional district for the sale of alcoholic beverages (Special)
9452	Amends Ord. 8064, classification and compensation plan (Special)
9453	Amends Ord. 8064, classification and compensation plan (Special)
9454	Amends § 12.04.230, vehicles and traffic (12.04)
9455	Adds (508.2.5) to 18.08.130, amendments to Standard Building Code (18.08)
9456	Creates an additional district for the sale of alcoholic beverages (Repealed by 9761)
9457	Amends § 9.04.380(D), solid waste management (9.04)
9458	Adds subsection to § 12.88.030, prohibited parking (12.88)
9459	Rezone (Special)
9460	Rezone (Special)
9461	Rezone (Special)
9462	Rezone (Special)
9463	Amends Ord. 7824, inspection and testing fees for building insulation (Not codified)
9464	Reletters § 9.44.260(B) to be (C) and adds new (B); reletters § 9.44.270(N) to be (O) and adds new (N); amends §§ 9.44.110(A), 9.44.150, 9.44.160 and 9.44.280, midwives (9.44)
9465	Authorizes temporary road closure (Special)
9466	Easement vacation (Special)
9467	Creates an additional district for the sale of alcoholic beverages (Special)
9468	Creates an additional district for the sale of alcoholic beverages (Special)
9469	Creates an additional district for the sale of alcoholic beverages (Special)
9470	Amends Ord. 8064, classification and compensation plan (Special)
9471	Amends Ord. 8064, classification and compensation plan (Special)
9472	Amends Ord. 8064, classification and compensation plan (Special)
9473	Rezone (Special)
9474	Amends Ord. 8064, classification and compensation plan (Special)
9475	Amends Ord. 8065, civil service rules and regulations (Special)
9476	Authorizes temporary road closure (Special)
9477	Avenue vacation (Special)
9478	Adds § 18.16.475, amendments to National Electrical Code (18.16)
9479	Easement vacation (Special)
9480	Easement vacation (Special)

Ordinance Number	
9481	Authorizes collection of annual fee from vendors on purchasing department bidders' list (Not codified)
9482	Creates an additional district for the sale of alcoholic beverages (Special)
9483	Rezone (Special)
9484	Amends Ord. 8065, civil service rules and regulations (Special)
9485	Amends § 9.12.070(M), food and food handling establishments (9.12)
9486	Rezone (Special)
9487	Amends Ord. 8064, classification and compensation plan (Special)
9488	Encroachment permit (Special)
9489	Authorizes temporary road closures (Special)
9490	Adds §§ 20.02.638, 20.02.649, 20.02.850 and 20.45.040(E) and (F); amends §§ 20.45.040(A) and 20.62.020(K), zoning (Repealed by 16653)
9491	Amends § 20.66.130(I), zoning (Repealed by 16304)
9492	Rezone (Special)
9493	Rezone (Special)
9494	Amends § 3.12.060, hotel room tax (3.12)
9495	Easement vacation (Special)
9496	Amends § 9.04.340, solid waste management (9.04)
9497	Amends §§ 12.56.010(A) and 12.88.130(A) and (B), vehicles and traffic (12.56, 12.88)
9498	Franchise (Special)
9499	1988 tax levy (Special)
9500	Deletes (275) and (276) from § 12.88.140, location of traffic control signals and devices (12.88)
9501	Adds subsections to and deletes (318) from § 12.88.140, location of traffic control signals and devices (12.88)
9502	Adds subsections to § 12.88.150(D), speed limits (12.88)
9503	Grants special privilege to construct certain driveways in city easement (Special)
9504	Amends Ord. 8262, border relations committee (2.72)
9505	Amends Ord. 9414, special privilege to MCI Corporation to additional public rights-of-way (Special)
9506	Rezone (Special)
9507	Rezone (Special)
9508	Rezone (Special)
9509	Rezone (Special)
9510	Rezone (Special)
9511	Rezone (Special)
9512	Rezone (Special)
9513	Special privilege to use certain city right-of-way as a taxicab stand (Special)
9514	Special privilege to use certain city right-of-way as a taxicab stand (Special)
9515	Bond issuance (Special)
9516	Amends § 6.12.020(A)(2), chauffeurs (6.12)
9517	Amends § 6.16.320(A), taxicabs (6.16)
9518	Lease agreement for transmitter facility construction (Special)
9519	Rezone (Special)
9520	Amends § 13.32.040, parades and demonstrations (13.12)
9521	Amends Ord. 8064, classification and compensation plan (Special)

Ordinance Number	
9522	Authorizes sale of certain land (Special)
9523	Amends § 20.02.476, zoning (Repealed by 16653)
9524	Rezone (Special)
9525	Rezone (Special)
9526	Rezone (Special)
9527	Rezone (Special)
9528	Corrects certain legal description (Special)
9529	Amends Ord. 8293, declaration of restrictions and covenants for Butter-field Trail Industrial Park (Not codified)
9530	Creates an additional district for the sale of alcoholic beverages (Special)
9531	Creates an additional district for the sale of alcoholic beverages (Special)
9532	Adds subsection to § 12.88.060(A), parking time limits (12.88)
9533	Amends Ord. 8064, classification and compensation plan (Special)
9534	Amends § 9.04.420(A), solid waste management (9.04)
9535	Amends § 9.04.400(A)(l), solid waste management (9.04)
9536	Street vacation (Special)
9537	Amends Ord. 8064, classification and compensation plan (Special)
9538	Amends Ord. 8064, classification and compensation plan (Special)
9539	Amends § 20.02.618, zoning (Repealed by 16653)
9540	Adds § 20.66.195, zoning (Repealed by 16653)
9541	Adds § 20.02.886; amends (B)(5) and (E)(2) of § 20.08.220, zoning (Repealed by 16653)
9542	Rezone (Special)
9543	Rezone (Special)
9544	Amends Ord. 9515, bond issuance (Special)
9545	Special privilege to landscape and maintain portion of certain right-of-way (Special)
9546	Amends Ord. 8725, maternity and child health program fee system (Repealed by 9608)
9547	Amends § 12.88. 150(D)(2), speed limits (12.88)
9548	Adds subsection to § 12.88.030, prohibited parking (12.88)
9549	Adds subsection to § 12.88.030, prohibited parking (12.88)
9550	Toll rate for pedestrians on Santa Fe Bridge (Repealed by 10193)
9551	Toll rates for Stanton Street International Bridge; repeals Ord. 8754 (Repealed by 10193)
9552	Amends Ord. 8064, classification and compensation plan (Special)
9553	Amends (B) and (D) of § 20.66.150, zoning (Repealed by 16653)
9554	Creates an additional district for the sale of alcoholic beverages (Special)
9555	Adds § 12.88.071, truck traffic prohibited (12.88)
9556	Adds § 12.88.072, heavy hauling prohibited at night (12.88)
9557	Adds subsections to § 12.88.140, location of traffic control signals and devices (12.88)
9558	Deletes (37) from § 12.88.070, heavy hauling prohibited (12.88)
9559	Amends § 12.40.030, large vehicle permits (12.40)
9560	Repeals Ord. 7487 (Repealer)
9561	Amends Ord. 8064, classification and compensation plan (Special)

Ordinance Number	
9562	Amends Ord. 8064, classification and compensation plan (Special)
9563	Amends Ord. 8064, classification and compensation plan (Special)
9564	Amends Ord. 8065, civil service rules and regulations (Special)
9565	Amends Ord. 8065, civil service rules and regulations (Special)
9566	Amends § 9.68.130, explosives and ammunition (9.68)
9567	Alley vacation (Special)
9568	Rezone (Special)
9569	Rezone (Special)
9570	Alley closure (Special)
9571	Amends § 7.20.020(A), quarantine (7.20)
9572	Special privilege to construct and maintain canvas-covered awning (Special)
9573	Special privilege to construct and maintain canvas-covered awning (Repealed by 12263)
9574	Creates an additional district for the sale of alcoholic beverages (Special)
9575	Creates an additional district for the sale of alcoholic beverages (Special)
9576	Rezone (Special)
9577	Adds subsections (C)(9) and (J) to § 14.16.110, airport use regulations (14.16)
9578	Adds subsections to § 12.88.030, parking prohibitions (12.88)
9579	Creates an additional district for the sale of alcoholic beverages (Special)
9580	Rezone (Special)
9581	Rezone (Special)
9582	Rezone (Special)
9583	Adds subsection to § 12.88.030, parking prohibitions (12.88)
9584	Replaces "director" with "chief of police" throughout Title 6; amends §§ 6.04.020(B) and (C), 6.04.030, 6.04.040 and 6.04.050, vehicles for hire (6.04, 6.08, 6.12, 6.16, 6.20, 6.28, 6.32, 6.36)
9585	Amends § 17.16.010(A), housing inspections and certificates (17.16)
9586	Amends § 18.04.040, building and construction permits (Repealed by 11904)
9587	Adds subsection (G) to § 18.08.060, building code (18.08)
9588	Adds subsection (I) to § 18.12.140 and amends § 18.12.140(G) and (H), mechanical code (18.12)
9589	Amends § 18.20.060(K), plumbing code (18.20)
9590	Adds subsection (J) to § 18.24.060 and amends § 18.24.060(H) and (I), gas code (18.24)
9591	Rezone (Special)
9592	Rezone (Special)
9593	Rezone (Special)
9594	Rezone (Special)
9595	Rezone (Special)
9596	Amends § 9.04.450, solid waste management (9.04)
9597	Amends § 9.04.400(A)(l), solid waste management (9.04)
9598	Bond issuance (Special)
9599	Amends Ord. 8064, classification and compensation plan (Special)
9600	Easement vacation (Special)
9601	Amends Ord. 8064, classification and compensation plan (Special)
9602	Amends Ord. 8064, classification and compensation plan (Special)
9603	Amends § 6.16.320(B) and (C), taxicabs (6.16)
9604	Rezone (Special)
9605	Rezone (Special)

Ordinance Number	
9606	Rezone (Special)
9607	Adds new definitions to § 9.44.010 and amends § 9.44.010(G), midwives (9.44)
9608	Maternity and child health program fee system; repeals Ords. 8725 and 9546 (Repealed by 9972)
9609	Amends Ord. 8065, civil service rules and regulations (Special)
9610	Amends §§ 20.67.050 and 20.67.060, zoning (Repealed by 16653)
9611	Amends Ord. 8739, additional district for the sale of alcoholic beverages (Special)
9612	Amends § 18.20.060(J), plumbing code (18.20)
9613	Amends § 5.16.070, appliance dealers and installers (5.16)
9614	Amends § 18.16.790, electrical code (18.16)
9615	Amends § 18.12.090, mechanical code (18.12)
9616	Amends §§ 20.10.040(R), 20.12.040(O), 20.14.040(P), 20.16.040(B), 20.20.040(L), 20.22.040(K), 20.24.040(K), 20.26.040(H), 20.28.040(J), 20.30.040(J), 20.32.040(N), 20.34.040(F), 20.36.040(G), 20.38.040(G), 20.40.040(G), 20.42.040(F), 20.44.040(C), 20.46.040(I), 20.48.040(G), 20.50.040(F), 20.52.060(B), 20.54.060(B), 20.56.060(B), 20.58.050(B), 20.60.050(B), 20.61.060(K) and 20.64.010, zoning (Repealed by 16653)
9617	Adds § 20.02.026, zoning (Repealed by 16653)
9618	Creates an additional district for the sale of alcoholic beverages (Special)
9619	Repeals Ord. 5444 (Repealer)
9620	Amends Ord. 8065, civil service rules and regulations (Special)
9621	Amends Ord. 8065, civil service rules and regulations (Special)
9622	Amends Ord. 8065, civil service rules and regulations (Special)
9623	Amends Ord. 8065, civil service rules and regulations (Special)
9624	Amends Ord. 8065, civil service rules and regulations (Special)
9625	Amends Ord. 8065, civil service rules and regulations (Special)
9626	Amends Ord. 8064, classification and compensation plan (Special)
9627	Amends Ord. 8064, classification and compensation plan (Special)
9628	Amends Ord. 8064, classification and compensation plan (Special)
9629	Amends Ord. 8064, classification and compensation plan (Special)
9630	Amends Ord. 8064, classification and compensation plan (Special)
9631	Amends Ord. 8064, classification and compensation plan (Special)
9632	Creates an additional district for the sale of alcoholic beverages (Special)
9633	Rezone (Special)
9634	Rezone (Special)
9635	Rezone (Special)
9636	Authorizes land conveyance to state (Special)
9637	Creates an additional district for the sale of alcoholic beverages (Special)
9638	1989 general election (Special)

Ordinance Number	
9639	Amends §§ 9.12.070 and 9.12.140, food and food handling establishments (9.12)
9640	Adds subsection (F) to § 9.04.400, solid waste management (9.04)
9641	Amends § 6.08.040(B), passenger buses and streetcars (6.08)
9642	Adds subsection to § 12.88.140, location of traffic control signals and devices (12.88)
9643	Amends § 9272, special privilege to use a portion of a public right-of-way (Special)
9644	Amends § 18.04.040, building and construction permits (Repealed by 11904)
9645	Adds Ch. 19.26, parkland dedication and § 19.04.355; amends § 19.28.030, subdivisions (19.04, 19.26, 19.28)
9646	Rezone (Special)
9647	Rezone (Special)
9648	Bond election (Special)
9649	Special election for charter amendments (Special)
9650	Amends Ord. 8064, classification and compensation plan (Special)
9651	Amends § 9.04.420(A), solid waste management (9.04)
9652	Amends § 9.04.400, solid waste management (9.04)
9653	Amends § 9.04.410, solid waste management (9.04)
9654	Special privilege to use portion of public right-of-way (Special)
9655	Amends § 12.88.030, parking prohibitions (12.88)
9656	Amends § 18.16.740, electrical code (18.76)
9657	Amends § 18.16.730, electrical code (18.16)
9658	Amends § 18.16.530, electrical code (18.16)
9659	Amends § 18.16.650(A), electrical code (18.16)
9660	Rezone (Special)
9661	Rezone (Special)
9662	Adds Ch. 5.25, distribution of literature, solicitation of donations and other regulated activities at the El Paso Zoo (5.25)
9663	Amends Ord. 8064, classification and compensation plan (Special)
9664	Street vacation (Special)
9665	Special privilege to landscape and maintain portion of certain right-of-way (Special)
9666	Adds Ch. 2.45, attorneys (2.45)
9667	Amends Ord. 9638, general election (Special)
9668	Amends Ord. 9668, bond election (Special)
9669	Amends Ord. 9649, special election (Special)
9670	Creates trust account (Repealed by 13164)
9671	Rezone (Special)
9672	Rezone (Special)
9673	Rezone (Special)
9674	Temporary street closure (Special)
9675	Adds subsections to § 12.88.030, parking prohibitions (12.88)
9676	Amends Ord. 8064, classification and compensation plan (Special)
9677	Amends Ord. 6374, additional district for the sale of alcoholic beverages (Special)
9678	Creates an additional district for the sale of alcoholic beverages (Special)
9679	Creates an additional district for the sale of alcoholic beverages (Repealed by 13437)

Ordinance Number	
9680	Adds subsections to § 12.88.030, parking prohibitions (12.88)
9681	Bond issuance (Special)
9682	Bond issuance (Special)
9683	Special privilege to close certain streets (Special)
9684	Amends § 2.64.200(B)(2), city employees' pension fund (2.64)
9685	Amends Ord. 8989, additional district for the sale of alcoholic beverages (Special)
9686	Adds §§ 20.02.230 and 20.08.200(D) and amends § 20.08.200(A), zoning (Repealed by 16653)
9687	Amends § 20.08.230(A) and (E), zoning (Repealed by 16653)
9688	Rezone (Special)
9689	Rezone (Special)
9690	Repeals Ord. 6273 (Repealer)
9691	Creates an additional district for the sale of alcoholic beverages (Repealed by 9760)
9692	Special privilege to close certain streets (Special)
9693	Alley vacation (Special)
9694	Adds subsections to § 12.88.150(F) and (H), speed limits; and repeals subsection (56) of § 12.88.150(F) (12.88)
9695	Adds subsection to § 12.88.030, parking prohibitions (12.88)
9696	Creates youth services advisory board (Not codified)
9697	Creates citizens' water advisory committee (Repealed by 12696)
9698	Rezone (Special)
9699	Rezone (Special)
9700	Rezone (Special)
9701	Special privilege to use portion of public right-of-way (Special)
9702	Special privilege to use portion of public right-of-way (Special)
9703	Alley vacation (Special)
9704	Adds subsections to § 12.88.150(E), (F), (G) and (I), speed limits; repeals subsection 43 of § 12.88.150(F) (12.88)
9705	Adds subsections to § 12.88.150(F), (G) and (H), speed limits; repeals subsection 54 of § 12.88.150(F) and subsection 23 of § 12.88.150(G) (12.88)
9706	Amends § 6.12.020(C), chauffeur's license (6.12)
9707	Amends §§ 14.04.010, 14.08.080 and 14.20.240(A), aircraft and airports (14.04, 14.08, 14.20)
9708	Amends Ord. 8065, civil service rules and regulations (Special)
9709	Amends Ord. 8064, classification and compensation plan (Special)
9710	Amends Ord. 8064, classification and compensation plan (Special)
9711	Amends Ord. 8064, classification and compensation plan (Special)
9712	Authorizes lease of city land (Special)
9713	Rezone (Special)
9714	Rezone (Special)
9715	Rezone (Special)
9716	Amends Ord. 8064, classification and compensation plan (Special)
9717	Creates citizens' environmental advisory committee (Repealed by 12935)
9718	Adds § 18.21.025 and amends §§ 18.21.030(32), 18.21.080(A) and 18.21.060(A), private sewage facilities (18.21)
9719	Amends Ord. 1890, additional district for the sale of alcoholic beverages (Special)

Ordinance Number	
9720	Adds subsection to § 12.88.150(F), speed limits (12.88)
9721	Adds subsections to, and repeals subsections (13), (14) and (15) of § 12.44.180(B), stopping, standing and parking generally (12.44)
9722	Creates history museum department and history museum board (Not codified)
9723	Amends § 2.36.080, El Paso Art Museum board of trustees (Repealed by 10145)
9724	Amends Ord. 8976, cable television franchise (Special)
9725	Creates department of risk management (Not codified)
9726	Amends §§ 6.20.050 and 6.20.080, international taxicabs (6.20)
9727	Creates an additional district for the sale of alcoholic beverages (Special)
9728	Amends § 2.16.050(B), zoning board of adjustment (Repealed by 16888)
9729	Adds §§ 20.02.314, 20.02.707.4.5, 20.02.707.5, 20.02.709, 20.02.714.2, 20.66.050(C) and 20.66.275; amends §§ 20.02.702.1, 20.02.705, 20.02.732, 20.02.738, 20.66.140, the name of §§ 20.66.260, 20.66.270, 20.66.290, subsections (B), (C)(1)(a)(ii), (C)(1)(b), (e) and (f), (C)(2)(b)(i), (C)(2)(c), (D)(1)(f), (D)(2)(b)(i), (D)(2)(c), (E)(1)(c), (E)(1)(f), (E)(2)(b)(i) and (E)(2)(c) of § 20.66.300, and §§ 20.66.310 and 20.66.330(B)(3)(b), zoning (Repealed by 16653)
9730	Easement vacation (Special)
9731	Special privilege to construct and maintain canvas-covered awning (Special)
9732	Amends § 12.88.140, location of traffic-control signals and devices (12.88)
9733	Adds § 20.02.594, zoning (Repealed by 16653)
9734	Adds subsection (E) to § 20.56.080 and amends §§ 20.56.080(C) and (D), 20.56.110 and 20.56.200, zoning (Repealed by 16653)
9735	Adds subsection (E) to § 20.54.080 and amends §§ 20.04.140, 20.54.080(C) and (D), 20.54.110 and 20.54.200, zoning (Repealed by 16653)
9736	Rezone (Special)
9737	Rezone (Special)
9738	Creates an additional district for the sale of alcoholic beverages (Repealed by 9827)
9739	Rezone (Special)
9740	Rezone (Special)
9741	Amends liquor district No. 759 (Special)
9742	Creates an additional district for the sale of alcoholic beverages (Repealed by 13438)
9743	Amends Ord. 8064, classification and compensation plan (Special)
9744	Amends Ord. 8064, classification and compensation plan (Special)
9745	Rezone (Special)
9746	Rezone (Special)
9747	Creates city library department (Not codified)
9748	Special privilege for temporary closure of certain streets (Special)
9749	Amends Ord. 8065, civil service rules and regulations (Special)

Ordinance Number	
9750	Amends Ord. 8064, classification and compensation plan (Special)
9751	Amends Ord. 8064, classification and compensation plan (Special)
9752	Extends closure of certain alleys (Special)
9753	Adds subsections to § 12.88.030, parking prohibitions (12.88)
9754	Rezone (Special)
9755	Rezone (Special)
9756	Rezone (Special)
9757	Amends § 18.16.680, electrical code (18.16)
9758	Amends § 18.16.750, electrical code (18.16)
9759	Amends Ord. 6009, communications between city and public utilities (Not codified)
9760	Repeals Ord. 9691 (Repealer)
9761	Repeals Ord. 9456 (Repealer)
9762	Deletes language from § 9.12.070(J), food and food handling establishments (9.12)
9763	Bond issuance (Special)
9764	Special privilege for encroachment on certain right-of-way (Special)
9765	Authorizes exchange of certain parcels of real property (Special)
9766	Rezone (Special)
9767	Rezone (Special)
9768	Rezone (Special)
9769	Rezone (Special)
9770	Rezone (Special)
9771	Adds §§ 20.02.189, 20.02.190 and 20.02.191, zoning (Repealed by 16653)
9772	Amends § 20.36.040(B), zoning (Repealed by 16653)
9773	Rezone (Special)
9774	Rezone (Special)
9775	Rezone (Special)
9776	Rezone (Special)
9777	Rezone (Special)
9778	Rezone (Special)
9779	Discrimination against disabled persons; amends § 2.84.020, handicapped grievance committee (2.84)
9780	Creates an additional district for the sale of alcoholic beverages (Special)
9781	Special privilege for temporary closure of certain streets (Repealed by 12010)
9782	Special privilege for use of portion of certain right-of-way (Repealed by 12010)
9783	Special privilege for use of portion of certain right-of-way (Repealed by 12011)
9784	Authorizes agreement for lease of certain city property (Special)
9785	Designates reinvestment zone "C" (Special)
9786	Rezone (Special)
9787	Rezone (Special)
9788	Rezone (Special)
9789	Rezone (Special)
9790	Amends Ord. 8064, classification and compensation plan (Special)
9791	Permits temporary use of certain park facility (Special)
9792	Adds § 1.08.080, general penalty (1.08)
9793	Repeals Ord. 5992 (Repealer)
9794	Authorizes conveyance of certain real property (Special)
9795	Creates an additional district for the sale of alcoholic beverages (Special)
9796	Creates an additional district for the sale of alcoholic beverages (Special)

Ordinance Number	
9797	Special privilege for construction of an exterior stairway (Special)
9798	Amends Ord. 8064, classification and compensation plan (Special)
9799	Amends Ord. 8064, classification and compensation plan (Special)
9800	Rezone (Special)
9801	Rezone (Special)
9802	Rezone (Special)
9803	Rezone (Special)
9804	Amends Ord. 8064, classification and compensation plan (Special)
9805	Alley vacation (Special)
9806	Special privilege to landscape portion of public right-of-way (Special)
9807	Street vacation (Special)
9808	Amends § 9.12.875, food and food handling establishments (9.12)
9809	Special privilege for encroachment on certain right-of-way (Special)
9810	Adds (Q)(3) to § 9.44.250; amends (F) and (G) of § 9.44.210, midwives (9.44)
9811	Rezone (Special)
9812	Special privilege for temporary closure of certain streets (Special)
9813	Special privilege for encroachment onto certain right-of-way (Special)
9814	Deletes subsection (47) from and adds new subsection to § 12.88.150(F), speed limits (12.88)
9815	Adds language to §§ 17.20.060 and 17.20.070; adds (K) and (L) to and amends (D) of § 17.20.030; adds (B)(3) to and amends (B)(1)(b) of § 17.20.050; amends § 17.20.020 and § 17.20.040(A) (intro) and (B), fair housing ordinance (17.20)
9816	Sewer easement vacation (Special)
9817	Amends (G) and (K) of § 20.61.060, zoning (Repealed by 16653)
9818	Amends § 20.36.020(13), zoning (Repealed by 16653)
9819	Creates an additional district for the sale of alcoholic beverages (Special)
9820	Amends § 6.32.010(A), limousine service (6.32)
9821	Adds §§ 20.34.020(I), 20.36.020(37), 20.38.020(47), 20.40.040(I) and 20.42.040(H); amends §§ 20.02.652, 20.10.020(H), 20.12.020(B), 20.14.020(C), 20.18.040(D), 20.20.020(E), 20.22.020(E), 20.24.020(E), 20.26.020(B), 20.28.020(E), 20.30.020(B), 20.32.020(D), 20.52.040(E), 20.54.040(5), 20.56.040(5) and 20.61.030(E), zoning (Repealed by 16653)
9822	Authorizes use of certain park facility (Special)
9823	Rezone (Special)
9824	Rezone (Special)
9825	Repeals Ord. 9186 (Repealer)
9826	Amends Ord. 8064, classification and compensation plan (Special)
9827	Repeals Ord. 9738 (Repealer)
9828	Authorizes lease agreement (Special)
9829	1989 tax levy (Special)
9830	Street vacation (Special)
9831	Special privilege for encroachment onto certain public right-of-way (Special)

Ordinance Number	
9832	Adds subsection to § 12.88.010, one-way streets (12.88)
9833	Rezone (Special)
9834	Rezone (Special)
9835	Rezone (Special)
9836	Creates an additional district for the sale of alcoholic beverages (Special)
9837	Adds subsection to (F) of and amends (H)(1) of § 12.88.150, speed limits (12.88)
9838	Rezone (Special)
9839	Amends §§ 5.25.050(D), 5.25.070(E) and 5.25.080(B), solicitation and literature distribution at the El Paso Zoo (5.25)
9840	Rezone (Special)
9841	Amends Ord. 5269, architect-engineer committee (Repealed by 15693)
9842	Amends § 18.24.060(G), gas code (18.24)
9843	Amends § 18.20.060(J), plumbing code (18.20)
9844	Amends § 18.04.050, building permit fees (Repealed by 11904)
9845	Amends § 18.12.140(F), mechanical code (18.12)
9846	Amends § 18.16.1000, electrical code (18.16)
9847	Amends § 18.16.980, electrical code (18.16)
9848	Amends § 18.08.060(F), building code (18.08)
9849	Amends Ord. 8064, classification and compensation plan (Special)
9850	Amends Ord. 8064, classification and compensation plan (Special)
9851	Amends §§ 20.66.100 and 20.66.110, zoning (Repealed by 16653)
9852	Rezone (Special)
9853	Creates an additional district for the sale of alcoholic beverages (Special)
9854	Creates an additional district for the sale of alcoholic beverages (Special)
9855	Amends Ord. 8064, classification and compensation plan (Special)
9856	Amends Ord. 8064, classification and compensation plan (Special)
9857	Amends Ord. 8064, classification and compensation plan (Special)
9858	Easement vacation (Special)
9859	Amends § 20.04.551(A), zoning (Repealed by 16653)
9860	Rezone (Special)
9861	Rezone (Special)
9862	Rezone (Special)
9863	Amends § 18.52.010, unsafe buildings and structures (Repealed by 1599)
9864	Rezone (Special)
9865	Creates an additional district for the sale of alcoholic beverages (Special)
9866	Adds (F)—(H) to § 9.12.050; adds subsections to and amends (7), (11), (19) and (20) of § 9.12.010; adds subsections to and amends (E)—(G) of § 9.12.070; amends §§ 9.12.120, 9.12.220, 9.12.740(A), 9.12.770 and 9.12.780, food and food handling establishments (9.12)
9867	Amends § 2.64.120(F); deletes (A) from § 2.64.140 and reletters remaining subsections, city employee's pension fund (2.64)
9868	Alley closure (Repealed by 10653)

Ordinance Number	
9869	Adds subsection to § 12.88.070, heavy hauling prohibitions (12.88)
9870	Amends Ord. 8064, classification and compensation plan (Special)
9871	Repeals Ord. 7594 (Repealer)
9872	Creates an additional district for the sale of alcoholic beverages (Special)
9873	Creates an additional district for the sale of alcoholic beverages (Special)
9874	Creates an additional district for the sale of alcoholic beverages (Special)
9875	Utility easement vacation (Special)
9876	Authorizes conveyance of certain real property (Special)
9877	Rezone (Special)
9878	Amends § 20.64.175, zoning (Repealed by 16653)
9879	Adds §§ 20.02.046, 20.34.020(I), 20.36.020(37), 20.38.020(47), 20.40.020(54), 20.42.020(73), 20.44.020(39) and 20.46.020(9), zoning (Repealed by 16653)
9880	Rezone (Special)
9881	Rezone (Special)
9882	Rezone (Special)
9883	Rezone (Special)
9884	Rezone (Special)
9885	Amends Ord. 8064, classification and compensation plan (Special)
9886	Repeals Ord. 2978 (Repealer)
9887	Repeals Ord. 2041 (Repealer)
9888	Creates an additional district for the sale of alcoholic beverages (Special)
9889	Creates an additional district for the sale of alcoholic beverages (Special)
9890	Rezone (Special)
9891	Rezone (Special)
9892	Issuance of tax and revenue certificates of obligation (Special)
9893	Bond issuance (Special)
9894	Authorizes lease of certain city property (Special)
9895	Creates an additional district for the sale of alcoholic beverages (Special)
9896	Amends § 20.16.090, zoning (Repealed by 16653)
9897	Amends § 20.52.140, zoning (Repealed by 16653)
9898	Authorizes lease of certain city property (Special)
9899	Authorizes lease of certain city property (Special)
9900	Authorizes lease of certain city property (Special)
9901	Authorizes lease of certain city property (Special)
9902	Authorizes lease of certain city property (Special)
9903	Authorizes lease of certain city property (Special)
9904	Special privilege for encroachment onto public right-of-way (Special)
9905	Special privilege for encroachment onto public right-of-way (Special)
9906	Amends Ord. 8064, classification and compensation plan (Special)
9907	Amends Ord. 8064, classification and compensation plan (Special)
9908	Amends Ord. 8064, classification and compensation plan (Special)
9909	Easement vacation (Special)
9910	Adds subsection to § 12.88.140, location of traffic-control signals (12.88)
9911	Alley vacation (Special)
9912	Easement vacation (Special)
9913	Amends Ord. 8065, civil service rules and regulations (Special)

Ordinance Number	
9914	Amends Ord. 8064, classification and compensation plan (Special)
9915	Special privilege for landscaping portion of public right-of-way (Special)
9916	Creates mayor's drug task force (Repealed by 10475)
9917	Special privilege for construction of awning over portion of public right-of-way (Special)
9918	Authorizes lease of certain city property (Special)
9919	Rezone (Special)
9920	Amends Ord. 8064, classification and compensation plan (Special)
9921	Utility easement vacation (Special)
9922	Special privilege for landscaping portion of public right-of-way (Special)
9923	Rezone (Special)
9924	Amends Ord. 9882, rezone (Special)
9925	Rezone (Special)
9926	Rezone (Special)
9927	Rezone (Special)
9928	Rezone (Special)
9929	Rezone (Special)
9930	Natural gas franchise (Special)
9931	Natural gas franchise (Special)
9932	Creates an additional district for the sale of alcoholic beverages (Special)
9933	Amends § 6.12.090, chauffeur's license (6.12)
9934	Amends Ord. 8064, classification and compensation plan (Special)
9935	Amends Ord. 8065, civil service rules and regulations (Special)
9936	Amends Ord. 8065, civil service rules and regulations (Special)
9937	Amends Ord. 8064, classification and compensation plan (Special)
9938	Amends Ord. 8064, classification and compensation plan (Special)
9939	Amends Ord. 8064, classification and compensation plan (Special)
9940	Amends Ord. 8064, classification and compensation plan (Special)
9941	Amends Ord. 8064, classification and compensation plan (Special)
9942	Amends Ord. 8064, classification and compensation plan (Special)
9943	Amends Ord. 8064, classification and compensation plan (Special)
9944	Amends Ord. 8064, classification and compensation plan (Special)
9945	Amends Ord. 8064, classification and compensation plan (Special)
9946	Amends Ord. 8064, classification and compensation plan (Special)
9947	Amends Ord. 8064, classification and compensation plan (Special)
9948	Amends Ord. 8064, classification and compensation plan (Special)
9949	Amends Ord. 8064, classification and compensation plan (Special)
9950	Amends Ord. 8064, classification and compensation plan (Special)
9951	Amends Ord. 8064, classification and compensation plan (Special)
9952	Amends Ord. 8064, classification and compensation plan (Special)
9953	Amends Ord. 8064, classification and compensation plan (Special)
9954	Creates an additional district for the sale of alcoholic beverages (Special)
9955	Rezone (Special)
9956	Rezone (Special)
9957	Adds § 2.64.400, city employee's pension fund (2.64)
9958	Amends Table 9.04.420(A), landfill fees (9.04)

Ordinance Number	
9959	Amends § 9.04.400(B), solid waste collection and transportation fees (9.04)
9960	Bond issuance (Special)
9961	Rezone (Special)
9962	Amends Ord. 8065, civil service rules and regulations (Special)
9963	Amends Ord. 8064, classification and compensation plan (Special)
9964	Amends Ord. 8064, classification and compensation plan (Special)
9965	Amends Ord. 8064, classification and compensation plan (Special)
9966	Amends Ord. 8064, classification and compensation plan (Special)
9967	Amends Ord. 8064, classification and compensation plan (Special)
9968	Amends Ord. 8064, classification and compensation plan (Special)
9969	Amends Ord. 8611, city employee travel procedures (Repealed by 16756)
9970	Authorizes conveyance of certain real property (Special)
9971	Amends Ch. 9.08, junked vehicles (9.08)
9972	Maternity and child health program fee system; repeals Ord. 9608 (Not codified)
9973	Special privilege to use portion of public right-of-way (Special)
9974	Special privilege to use portion of public right-of-way (Repealed by 12009)
9975	Amends § 15.12.120 and 15.12.130, water and sewer system (15.12)
9976	Designates reinvestment zone "D" (Special)
9977	Special privilege for landscaping portion of public right-of-way (Special)
9978	Special privilege for construction of canopy over portion of public right-of-way (Special)
9979	Adds § 9.52.170(C), 9.52.185 and 9.52.190(C) and (D); amends § 9.52.150; repeals and replaces §§ 9.52.050 and 9.52.070 and Ch. 9.77; repeals § 9.52.030, fire prevention code and permit and license schedule (Repealed by 13356)
9980	Amends Ord. 6163, arts resources department (Repealed by 14880)
9981	Amends Ord. 8064, classification and compensation plan (Special)
9982	Amends Ord. 8064, classification and compensation plan (Special)
9983	Rezone (Special)
9984	Rezone (Special)
9985	Special privilege for use of certain city property and rights-of-way (Special)
9986	Authorizes lease of certain city property (Special)
9987	Adds Ch. 13.40, graffiti and aerosol paint containers (Repealed by 11806)
9988	Amends § 6.28.040, sightseeing or charter services (6.28)
9989	Amends § 6.28.100, sightseeing or charter services (6.28)
9990	Amends § 6.36.030, driverless automobiles (6.36)
9991	Amends § 6.36.040, driverless automobiles (6.36)
9992	Easement vacation (Special)
9993	Amends § 18.08.060(E)(1), building code (18.08)
9994	Amends § 18.20.060(I), plumbing code (18.20)

Ordinance Number	
9995	Amends revision of § 106.6 of adopted Standard Mechanical Code in § 18.12.090 (18.12)
9996	Amends § 18.24.060(E), gas piping (18.24)
9997	Creates an additional district for the sale of alcoholic beverages (Special)
9998	Rezone (Special)
9999	Authorizes certain license agreement (Special)
10000	Authorizes lease agreement for certain city property (Special)
10001	Ambulance service franchise (Special)
10002	Easement vacation (Special)
10003	Easement vacation (Special)
10004	Natural gas franchise (Special)
10005	Amends Ord. 8064, classification and compensation plan (Special)
10006	Amends Ord. 8064, classification and compensation plan (Special)
10007	Authorizes conveyance of certain real property (Special)
10008	Adds subsection to § 12.88.140, location of traffic-control signals (12.88)
10009	Amends Ord. 8064, classification and compensation plan (Special)
10010	Moratorium on approval of development applications for railroad facilities in certain districts (Special)
10011	Amends § 20.08.175, zoning (Repealed by 16653)
10012	Rezone (Special)
10013	Rezone (Special)
10014	Rezone (Special)
10015	Amends Ord. 9828, lease agreement (Special)
10016	Adds (D) and (E) to and amends language in (B) of § 6.16.320, taxicabs (6.16)
10017	Creates an additional district for the sale of alcoholic beverages (Special)
10018	Creates an additional district for the sale of alcoholic beverages (Special)
10019	Creates an additional district for the sale of alcoholic beverages (Special)
10020	Creates an additional district for the sale of alcoholic beverages (Special)
10021	Utility easement vacation (Special)
10022	Authorizes lease of certain city facility (Special)
10023	Authorizes lease of certain city facility (Special)
10024	Amends Ord. 8064, classification and compensation plan (Special)
10025	Special privilege for temporary road closure (Special)
10026	Alley vacation (Special)
10027	Adds § 12.88.060(E), parking time limits (12.88)
10028	Adds § 2.64.041, city employees' pension fund (Repealed by 16619)
10029	Special privilege for temporary road closure (Special)
10030	Rezone (Special)
10031	Rezone (Special)
10032	Rezone (Special)
10033	Rezone (Special)
10034	Rezone (Special)
10035	Rezone (Special)
10036	Authorizes conveyance of certain real property (Special)
10037	Amends Ord. 8064, classification and compensation plan (Special)

Ordinance Number	
10038	Authorizes execution of lease agreement (Special)
10039	Amends Ord. 9272, special privilege for public right-of-way use (Special)
10040	Amends § 12.88.140, location of traffic-control signals (12.88)
10041	Amends § 12.88.030, parking prohibitions (12.88)
10042	Amends § 12.44.180(B)(21), stopping, standing and parking (12.44)
10043	Amends § 12.88.150(N), speed limits (12.88)
10044	Calls bond election (Special)
10045	Creates an additional district for the sale of alcoholic beverages (Special)
10046	Amends §§ 12.44.170, 12.56.010 and 12.88.130(A), vehicles and traffic (12.44, 12.56, 12.88)
10047	Amends § 12.88.140, location of traffic-control signals (12.88)
10048	Amends § 12.88.030, parking prohibitions (12.88)
10049	Amends § 18.08.060(F), building code (18.08)
10050	Special privilege for encroachment onto public right-of-way (Special)
10051	Rezone (Special)
10052	Rezone (Special)
10053	Rezone (Special)
10054	Rezone (Special)
10055	Rezone (Special)
10056	Rezone (Special)
10057	Rezone (Special)
10058	Rezone (Special)
10059	Rezone (Special)
10060	Amends § 2.16.060(A), zoning board of adjustment (Repealed by 16888)
10061	Repeals Ord. 5163 (Repealer)
10062	Repeals Ord. 6066 (Repealer)
10063	Repeals Ord. 6783 (Repealer)
10064	Repeals Ord. 7187 (Repealer)
10065	Repeals Ord. 7470 (Repealer)
10066	Repeals Ord. 7636 (Repealer)
10067	Repeals Ord. 7842 (Repealer)
10068	Special privilege for temporary road closure (Special)
10069	Special privilege for temporary road closure (Special)
10070	Amends Ord. 8064, classification and compensation plan (Special)
10071	Special privilege for temporary road closure (Special)
10072	Rezone (Special)
10073	Rezone (Special)
10074	Rezone (Special)
10075	Rezone (Special)
10076	Rezone (Special)
10077	Rezone(Special)
10078	Rezone (Special)
10079	Rezone (Special)
10080	Easement vacation (Special)
10081	Creates an additional district for the sale of alcoholic beverages (Special)
10082	Repeals Ord. 6744 (Repealer)
10083	Repeals Ord. 5874 (Repealer)
10084	Amends § 12.88.030, parking prohibitions (12.88)
10085	Amends Ord. 8064, classification and compensation plan (Special)
10086	Creates an additional district for the sale of alcoholic beverages (Special)
10087	Amends Ord. 7961, additional district for the sale of alcoholic beverages (Special)
10088	Amends § 12.88.030, parking prohibitions (12.88)
10089	Authorizes conveyance of certain real property (Special)

Ordinance Number	
10090	Amends Ord. 8064, classification and compensation plan (Special)
10091	Easement vacation (Special)
10092	Amends Ord. 8064, classification and compensation plan (Special)
10093	Permits use of public property (Special)
10094	Creates an additional district for the sale of alcoholic beverages (Special)
10095	Special privilege for temporary road closure (Special)
10096	Reletters subsection F of § 2.64.120 to be subsection K, city employees' pension fund (2.64)
10097	Amends Ord. 10044, calling bond election (Special)
10098	Special privilege for temporary road closure (Special)
10099	Special privilege to maintain public rights-of-way (Special)
10100	Amends § 2.16.060(A), zoning board of adjustment (Repealed by 16888)
10101	Amends Ord. 8064, classification and compensation plan (Special)
10102	Creates an additional district for the sale of alcoholic beverages (Special)
10103	Adds § 12.40.090(E), size, weight and class restrictions (12.40)
10104	Authorizes lease of city property (Special)
10105	Rezone (Special)
10106	Rezone (Special)
10107	Rezone (Special)
10108	Rezone (Special)
10109	Rezone (Special)
10110	Rezone (Special)
10111	Rezone (Special)
10112	Rezone (Special)
10113	Special privilege for certain city property (Special)
10114	Amends Ord. 8065, civil service rules and regulations (Special)
10115	Amends Ord. 8065, civil service rules and regulations (Special)
10116	Amends Ord. 8064, classification and compensation plan (Special)
10117	Amends Ord. 8064, classification and compensation plan (Special)
10118	Amends Ord. 7573, mayor's advisory board on aging (Repealed by 16353)
10119	Rezone (Special)
10120	Rezone (Special)
10121	Rezone (Special)
10122	Creates an additional district for the sale of alcoholic beverages (Special)
10123	Creates an additional district for the sale of alcoholic beverages (Special)
10124	Repeals Ord. 6259 (Repealer)
10125	Creates an additional district for the sale of alcoholic beverages (Special)
10126	Capital improvements advisory committee (Repealed by 12857)
10127	Special privilege for temporary road closure (Special)
10128	Amends § 2.64.220, city employees' pension fund (2.64)
10129	Rezone (Special)
10130	Rezone (Special)
10131	Amends Ord. 8064, classification and compensation plan (Special)
10132	Amends Ord. 8064, classification and compensation plan (Special)
10133	Amends Ord. 8064, classification and compensation plan (Special)
10134	Amends Ord. 9414, special privilege (Special)

Ordinance Number	
10135	Special privilege to maintain public right-of-way (Special)
10136	Adds §§ 20.46.030(M), 20.46.040(K), 20.48.030(L), 20.50.030(L), 20.60.040(14)(m) and 20.60.050(D); amends §§ 20.02.200, 20.02.224, 20.02.388, 20.08.140(B)(9), 20.36.030(J), 20.38.030(K), 20.40.030(K), 20.42.030(K), 20.44.030(K), 20.46.020(8) and 20.60.040(15); repeals §§ 20.02.368, 20.02.628, 20.02.636, 20.10.050(A)(6), 20.12.050(A)(1), 20.14.050(A)(1), 20.20.040(K), 20.20.050(A)(1), 20.22.040(J), 20.22.050(A)(1), 20.24.040(J), 20.24.050(A)(1), 20.26.040(G), 20.26.050(A), 20.28.040(I), 20.28.050(A)(1), 20.30.040(I), 20.30.050(A)(1), 20.32.040(M), 20.32.050(A)(1), 20.54.070(A), 20.56.070(A), 20.61.060(F) and 20.61.070(A)(1), zoning (Repealed by 16653)
10137	Repeals Ord. 6137 (Repealer)
10138	Repeals Ord. 8087 (Repealer)
10139	Permits use of public property (Special)
10140	Rezone (Special)
10141	Rezone (Special)
10142	Rezone (Special)
10143	Rezone (Special)
10144	Creates an additional district for the sale of alcoholic beverages (Special)
10145	Repeals ordinances establishing the following committees and boards: ad hoc street name committee; El Paso child care advisory board; metropolitan social planning committee; sanitation advisory board; transportation committee; city insurance advisory board; library board; and El Paso Art Museum board of trustees (Repealer)
10146	Repeals § 5.24.190(D), charitable solicitations (5.24)
10147	Amends § 15.12.090, water and sewer system (15.12)
10148	Amends Ord. 9414, special privilege (Special)
10149	Amends Ord. 8064, classification and compensation plan (Special)
10150	Creates an additional district for the sale of alcoholic beverages (Special)
10151	Creates an additional district for the sale of alcoholic beverages (Special)
10152	Special privilege to maintain public right-of-way (Special)
10153	Adds §§ 20.02.053, 20.02.054, 20.02.118, 20.02.119, 20.02.191.1, 20.02.266, 20.02.334, 20.02.343, 20.02.343.1, 20.02.343.2, 20.02.381, 20.02.382, 20.02.422.1, 20.02.422.2, 20.02.494, 20.02.518, 20.02.519, 20.02.569, 20.02.570, 20.02.607, 20.02.625, 20.02.625.1, 20.02.625.2, 20.02.625.3, 20.02.645, 20.02.851, 20.04.320(D), 20.04.552, 20.08.203, 20.08.310(E), 20.18.040(I), 20.20.040(O), 20.22.040(N), 20.24.040(N), 20.26.040(L), 20.28.020(R), 20.28.040(M), 20.30.020(P), 20.30.040(M), 20.34.020(K), 20.34.040(H), 20.36.020(38), 20.36.040(J), 20.38.020(47), 20.38.040(I), 20.40.020(54), 20.40.040(J)—(L), 20.42.020(74)—(77), 20.42.030(O), 20.42.040(I)—(K),

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	20.44.020(40) and (41), 20.44.030(O), 20.44.040(E), 20.45.030(G), 20.45.040(G), 20.46.020(3)(u)—(bb), (10) and (11), 20.48.020(B)(22)—(29), (K) and (L), 20.50.020(B)(20)—(27), (K) and (L), 20.52.040(O), 20.54.040(16), 20.56.040(16), 20.58.040(24), 20.60.040(14)(m), and (16)—(20), 20.60.050(d) and (e) and 20.61.030(J); amends §§ 20.02.020(E), 20.02.040, 20.10.020(K), 20.10.040(H), 20.12.020(I), 20.12.040(G), 20.14.020(I), 20.14.040(G), 20.16.020(C), 20.20.020(L), 20.22.020(N), 20.24.020(N), 20.26.020(H), 20.32.020(K), 20.32.040(G), 20.36.020(27), 20.36.040(C), 20.38.020(37), 20.38.040(C), 20.40.020(49), 20.40.040(E), 20.42.020(31), (41), (63) and (68), 20.42.040(C), 20.44.020(30), 20.46.020(3)(g), (l) and (n), 20.48.020(B)(8), (14) and (15), 20.50.020(B)(7) and (13)—(15) and 20.62.020(C); repeals § 20.46.040(E), zoning (Repealed by 16653)
10154	Authorizes transfer of property (Special)
10155	Grants right of entry (Special)
10156	Easement vacation (Special)
10157	Amends Ord. 7691, additional district for the sale of alcoholic beverages (Special)
10158	Creates an additional district for the sale of alcoholic beverages (Special)
10159	Rezone (Special)
10160	Special privilege for temporary road closure (Special)
10161	Amends §§ 7.12.020(C) and (F) and 7.12.030(D), dogs and cats (7.12)
10162	Animal regulation and disease control fee system (Repealed by 12121)
10163	Creates an additional district for the sale of alcoholic beverages (Special)
10164	Amends § 15.12.090, water and sewer system (15.12)
10165	Amends Ord. 8064, classification and compensation plan (Special)
10166	Special privilege for pipeline construction and maintenance (Special)
10167	Special privilege for pipeline construction and maintenance (Special)
10168	Authorizes land sale (Special)
10169	Amends Ord. 8704, encroachment on right-of-way (Special)
10170	Easement vacation (Special)
10171	Alley vacation (Special)
10172	Special privilege for right-of-way encroachment (Repealed by 13229)
10173	Rezone (Special)
10174	Rezone (Special)
10175	Rezone (Special)
10176	Rezone (Special)
10177	Rezone (Special)
10178	Amends Ord. 8064, classification and compensation plan (Special)
10179	Amends Ord. 8064, classification and compensation plan (Special)
10180	Special privilege for right-of-way encroachment (Special)
10181	Permits use of public property (Special)
10182	Repeals § 2.40.020 (Repealer)

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10183	Amends §§ II(A), III(2) and (3) of Ord. 10126, capital improvements advisory committee (Not codified)
10184	Street and alley vacation (Special)
10185	Rezone (Special)
10186	Rezone (Special)
10187	Permits use of public property (Special)
10188	Amends § 12.88.070, heavy hauling (12.88)
10189	Rezone (Special)
10190	Rezone (Special)
10191	Rezone (Special)
10192	Amends Ord. 10105, rezone (Special)
10193	Adds Ch. 12.78, international bridges; repeals Ords. 9550 and 9551 (12.78)
10194	Authorizes golf course lease (Special)
10195	Permits use of public property (Special)
10196	Permits use of public property (Special)
10197	Amends § 12.16.010, accident reports (12.16)
10198	Amends Ord. 8064, classification and compensation plan (Special)
10199	Special privilege for right-of-way use (Special)
10200	Special privilege to maintain public right-of-way (Special)
10201	Special privilege for temporary road closure (Special)
10202	Amends Ord. 8064, classification and compensation plan (Special)
10203	Amends Ord. 8064, classification and compensation plan (Special)
10204	Amends Ord. 8064, classification and compensation plan (Special)
10205	Revises fee system for neighborhood health centers (Repealed by 10714)
10206	Amends § 20.08.130, zoning (Repealed by 16653)
10207	Amends §§ 20.42.020(59), 20.46.020(3)(r), 20.48.020(B)(20), 20.50.020(B)(18) and 20.60.040(11); repeals §§ 20.46.020(3)(p), 20.48.020(B)(16) and 20.50.020(B)(15), zoning (Repealed by 16653)
10208	Adds §§ 20.66.300(F) and 20.66.310(H); amends §§ 20.02.732, 20.66.230(F), 20.66.275, 20.66.300(C)(2)(b)(ii) and 20.66.310(C)(3)(b); and repeals §§ 20.66.210(D) and 20.66.350(B)(1), zoning (Repealed by 16653)
10209	Rezone (Special)
10210	Rezone (Special)
10211	Rezone (Special)
10212	Amends § 19.24.010(F), subdivisions (19.24)
10213	Special privilege for right-of-way use (Special)
10214	Creates an additional district for the sale of alcoholic beverages (Special)
10215	Repeals Ord. 6388 (Repealer)
10216	Repeals Ord. 4350 (Repealer)
10217	Repeals Ord. 2362 (Repealer)
10218	Repeals Ord. 42 (Repealer)
10219	Bond issuance (Special)
10220	Bond issuance (Special)
10221	Repeals Ord. 4411 (Repealer)
10222	Repeals Ord. 8081 (Repealer)
10223	Repeals Ord. 5303 (Repealer)
10224	Repeals Ord. 6124 (Repealer)
10225	Repeals Ord. 6859 (Repealer)

Ordinance Number	
10226	Repeals Ord. 6303 (Repealer)
10227	Repeals Ord. 6947 (Repealer)
10228	Repeals Ord. 7113 (Repealer)
10229	Repeals Ord. 7423 (Repealer)
10230	Creates an additional district for the sale of alcoholic beverages (Special)
10231	Amends Ord. 8064, classification and compensation plan (Special)
10232	Amends Ord. 8064, classification and compensation plan (Special)
10233	Amends Ord. 8064, classification and compensation plan (Special)
10234	Amends Ord. 8064, classification and compensation plan (Special)
10235	Amends § 12.88.140, location of traffic-control signals (12.88)
10236	Amends § 12.88.070, heavy hauling (12.88)
10237	Rezone (Special)
10238	Special privilege for right-of-way encroachment (Special)
10239	Rezone (Special)
10240	Adds §§ 15.12.005(E), 15.12.120-1 and 15.12.120-2; amends § 15.12.120, water and sewer system (15.12)
10241	Adds § 9.52.161, fire protection code (Repealed by 13356)
10242	Amends Ord. 10167, special privilege (Special)
10243	Amends city-county health district laboratory fee schedule (Not codified)
10244	Amends §§ 9.52.050, 9.52.150 and 9.77.020, health and safety (9.52, 9.77)
10245	Creates an additional district for the sale of alcoholic beverages (Special)
10246	Rezone (Special)
10247	Rezone (Special)
10248	Rezone (Special)
10249	Rezone (Special)
10250	Amends Ord. 10185, rezone (Special)
10251	1990 tax levy (Special)
10252	Special privilege for temporary street closure (Special)
10253	Amends § 2.64.070, city employees' pension fund (Special)
10254	Preliminary historical district designation (Special)
10255	Amends § 9.52.185, fire prevention code (Repealed by 13356)
10256	Street vacation (Special)
10257	Amends § 12.88.150, speed limits (12.88)
10258	Amends § 12.88.140, location of traffic-control devices (12.88)
10259	Amends § 12.88.070, heavy hauling (12.88)
10260	Amends § 12.88.070, heavy hauling (12.88)
10261	Amends § 12.88.030, parking prohibitions (12.88)
10262	Special privilege for right-of-way encroachment (Special)
10263	Rezone (Special)
10264	Rezone (Special)
10265	Rezone (Special)
10266	Rezone (Special)
10267	Amends Ord. 8064, classification and compensation plan (Special)
10268	Amends Ord. 8064, classification and compensation plan (Special)
10269	Amends Ord. 8064, classification and compensation plan (Special)
10270	Special privilege for right-of-way encroachment (Special)
10271	Amends Ord. 9773, rezone (Special)

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10272	Permits use of public land (Special)
10273	Permits use of public land (Special)
10274	Permits use of public land (Special)
10275	Special privilege for easement use (Special)
10276	Special privilege to maintain public right-of-way (Special)
10277	Rezone (Special)
10278	Rezone (Special)
10279	Amends §§ 8, 11, 15, 16, 18, 20, 23, 25, 27, 30, 34 and 38 of Ord. 10153, zoning (Repealed by 16653)
10280	Adds §§ 14.16.300—14.16.315, airport use regulations (14.16)
10281	Rezone (Special)
10282	Rezone (Special)
10283	Repeals § 5.24.090 (Repealer)
10284	Repeals Ord. 1521 (Repealer)
10285	Repeals Ord. 2891 (Repealer)
10286	Repeals Ord. 3062 (Repealer)
10287	Repeals Ord. 3289 (Repealer)
10288	Repeals Ord. 4694 (Repealer)
10289	Repeals Ord. 5346 (Repealer)
10290	Repeals Ord. 6470 (Repealer)
10291	Repeals Ord. 6726 (Repealer)
10292	Repeals Ord. 7329 (Repealer)
10293	Repeals Ord. 7681 (Repealer)
10294	Repeals Ord. 7911 (Repealer)
10295	Amends § 12.88.060, parking time limited (12.88)
10296	Adds § 7 to, and amends §§ 2 and 3 of Ord. 6964, bikeway advisory board (Repealed by 12606)
10297	Amends § 19.26.060(B), subdivisions (19.26)
10298	Rezone (Special)
10299	Rezone (Special)
10300	Amends § 20.04.310, zoning (Repealed by 16653)
10301	Amends § 20.08.330, zoning (Repealed by 16653)
10302	Ambulance services franchise grant (Special)
10303	Amends Ord. 8064, classification and compensation plan (Special)
10304	Amends Ord. 8064, classification and compensation plan (Special)
10305	Creates an additional district for the sale of alcoholic beverages (Special)
10306	Creates an additional district for the sale of alcoholic beverages (Special)
10307	Amends § 12.88.010, one-way streets (12.88)
10308	Amends § 12.88.030, parking prohibitions (12.88)
10309	Adds §§ 20.10.040(U), 20.12.040(R), 20.14.040(S), 20.16.040(D), 20.20.040(P), 20.22.040(O), 20.24.040(O), 20.26.040(M), 20.28.040(N), 20.30.040(N), 20.32.040(Q), 20.34.040(I), 20.36.040(K), 20.38.040(J), 20.40.040(M), 20.42.040(L), 20.44.040(F), 20.46.040(L), 20.48.040(J), 20.50.040(I), 20.52.060(E), 20.54.060(G), 20.56.060(G), 20.58.050(D) and 20.60.060(G) and amends §§ 20.10.040(R), 20.12.040(O), 20.14.040(P), 20.16.040(B), 20.20.040(L), 20.22.040(K), 20.24.040(K), 20.26.040(H), 20.28.040(J), 20.30.040(J), 20.32.040(N), 20.34.040(F), 20.36.040(G), 20.38.040(G), 20.40.040(G),

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	20.42.040(F), 20.44.040(C), 20.46.040(I), 20.48.040(G), 20.50.040(F), 20.52.060(B), 20.54.060(B), 20.56.060(B), 20.58.050(B) and 20.60.060(B), zoning (Repealed by 16653)
10310	Amends § 20.64.175, zoning (Repealed by 16653)
10311	Amends § 9.44.320(B) and (E), midwives (Repealed by 12700)
10312	Permits use of public property (Special)
10313	Special privilege for public property encroachment (Special)
10314	Special privilege for right-of-way encroachment (Special)
10315	Corrects Ord. 10282, rezone (Special)
10316	Repeals Ord. 2814 (Repealer)
10317	Repeals Ord. 3564 (Repealer)
10318	Repeals Ord. 2934 (Repealer)
10319	Repeals Ord. 4412 (Repealer)
10320	Repeals Ord. 5132 (Repealer)
10321	Repeals Ord. 6035 (Repealer)
10322	Repeals Ord. 6687 (Repealer)
10323	Creates an additional district for the sale of alcoholic beverages (Special)
10324	Creates an additional district for the sale of alcoholic beverages (Special)
10325	Creates an additional district for the sale of alcoholic beverages (Special)
10326	Amends Ord. 8064, classification and compensation plan (Special)
10327	Amends Ord. 8064, classification and compensation plan (Special)
10328	Amends Ord. 8064, classification and compensation plan (Special)
10329	Amends Ord. 8064, classification and compensation plan (Special)
10330	Amends Ord. 8064, classification and compensation plan (Special)
10331	Amends Ord. 8065, civil service rules and regulations (Special)
10332	Permits use of public property (Special)
10333	Permits use of public property (Special)
10334	Right-of-way vacation (Special)
10335	Adds Ch. 9.38, woodburning (9.38)
10336	Water and sewer revenue bonds (Special)
10337	Fee schedule for sexually transmitted disease lab services (Repealed by 10728)
10338	Fee system for dental clinic (Special)
10339	Designates one-way street (Special)
10340	Amends project and financing plan for reinvestment zone one (Special)
10341	Alley vacation (Special)
10342	Amends Ord. 8064, classification and compensation plan (Special)
10343	Amends Ord. 8065, civil service rules and regulations (Special)
10344	Amends project and financing plan for reinvestment zone one (Special)
10345	Amends § 2.64.270, pension fund (2.64)
10346	Amends § 2.88.020, architect-engineer selection committee (Repealed by 15693)
10347	Amends Ord. 9828 (Special)
10348	Amends § 12.76.080, sidewalks (Repealed by 16913)

Ordinance Number	
10349	Creates an additional district for the sale of alcoholic beverages (Special)
10350	Repeals Ord. 2420 (Repealer)
10351	Repeals Ord. 2798 (Repealer)
10352	Repeals Ord. 3883 (Repealer)
10353	Repeals Ord. 4171 (Repealer)
10354	Repeals Ord. 5074 (Repealer)
10355	Repeals Ord. 5379 (Repealer)
10356	Repeals Ord. 5447 (Repealer)
10357	Repeals Ord. 5472 (Repealer)
10358	Repeals Ord. 5630 (Repealer)
10359	Repeals Ord. 5835 (Repealer)
10360	Repeals Ord. 6438 (Repealer)
10361	Repeals Ord. 5443 (Repealer)
10362	Rezone (Special)
10363	Adds § 15.08.120, public services (15.08)
10364	Amends Ch. 13.32, parades and temporary events (13.32)
10365	Special privilege for encroachment of projecting sign (Special)
10366	Special privilege for encroachment of awning sign (Special)
10367	Provides for system of records retention, renewal and destruction and repeals Ord. 7452 (Special)
10368	Amends § 6.20.040, vehicles for hire (6.20)
10369	Amends § 20.66.150, zoning (Repealed by 16653)
10370	Adds §§ 20.02.624.5, 20.08.204, 20.10.040(W), 20.12.040(T), 20.14.040(U), 20.16.040(E), 20.18.060(P), 20.20.040(R), 20.22.040(Q), 20.24.040(P), 20.26.040(N), 20.28.040(P), 20.30.040(P), 20.32.040(S), 20.34.030(K), 20.34.040(J), 20.36.030(P), 20.36.040(L), 20.38.030(P), 20.38.040(L), 20.40.030(P), 20.40.040(O), 20.42.030(Q), 20.42.040(N), 20.44.030(Q), 20.44.040(H), 20.45.040(H), 20.45.041(E), 20.46.030(N), 20.46.040(L), 20.52.060(G), 20.54.060(I), 20.56.060(I), 20.58.040(23)(j), 20.58.050(E), 20.60.050(G) and 20.61.060(L) and amends §§ 20.10.040(P), 20.12.040(M), 20.14.040(N), 20.16.040(A), 20.18.060(M), 20.20.040(J), 20.22.040(I), 20.24.040(I), 20.26.040(F), 20.28.040(H), 20.30.040(H), 20.32.040(L), 20.34.040(E), 20.36.040(F), 20.38.040(F), 20.40.040(F), 20.42.040(E), 20.44.040(B), 20.45.041(B), 20.46.040(H), 20.48.020(H), 20.50.020(D), 20.52.060(A)(1), 20.54.060(A), 20.56.060(A), 20.58.050(A), 20.60.050(A) and 20.61.060(E), zoning (Repealed by 16653)
10371	Rezone (Special)
10372	Rezone (Special)
10373	Repeals Ord. 1546 (Repealer)
10374	Repeals Ord. 1658 (Repealer)
10375	Repeals Ord. 2644 (Repealer)
10376	Repeals Ord. 2892 (Repealer)
10377	Repeals Ord. 3399 (Repealer)
10378	Repeals Ord. 3722 (Repealer)
10379	Repeals Ord. 4274 (Repealer)
10380	Repeals Ord. 4389 (Repealer)
10381	Repeals Ord. 5173 (Repealer)
10382	Repeals Ord. 5420 (Repealer)
10383	Repeals Ord. 5604 (Repealer)
10384	Repeals Ord. 7273 (Repealer)
10385	Amends Ch. 9.38, explosives (9.38)

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10386	Amends Ord. 8064, classification and compensation plan (Special)
10387	Amends Ord. 8064, classification and compensation plan (Special)
10388	Amends Ord. 8064, classification and compensation plan (Special)
10389	Amends Ord. 8064, classification and compensation plan (Special)
10390	Amends Ord. 8064, classification and compensation plan (Special)
10391	Temporary street closure (Special)
10392	Special privilege to encroach over portions of public rights-of-way (Special)
10393	Amends § 2.84.030, handicap grievance committee (2.84)
10394	Rezone (Special)
10395	Rezone (Special)
10396	Amends § 12.88.140, traffic (12.88)
10397	Establishes procedures for city council meetings and repeals Ords. 8245 and 8433 (Not codified)
10398	Amends § 12.88.130, traffic (12.88)
10399	Amends §§ 12.56.010(A) and 12.56.040, traffic (12.56)
10400	Amends Ord. 8147 (Special)
10401	Special privilege for encroachment of a canopy onto public right-of-way (Special)
10402	Special privilege for encroachment of a canopy onto public right-of-way (Special)
10403	Amends § 2.64.260(A), employee compensation (2.64)
10404	Amends Ord. 8064, classification and compensation plan (Special)
10405	Amends Ord. 8064, classification and compensation plan (Special)
10406	Amends Ord. 8064, classification and compensation plan (Special)
10407	Amends Ord. 8064, classification and compensation plan (Special)
10408	Utility easement vacation (Special)
10409	Creates an additional district for the sale of alcoholic beverages (Special)
10410	Creates an additional district for the sale of alcoholic beverages (Special)
10411	Repeals Ords. 1351, 2156 and 2868 (Repealer)
10412	Repeals Ord. 2692 (Repealer)
10413	Repeals Ord. 3184 (Repealer)
10414	Repeals Ord. 3565 (Repealer)
10415	Repeals Ord. 7426 (Repealer)
10416	Repeals Ord. 7066 (Repealer)
10417	Repeals Ord. 6784 (Repealer)
10418	Repeals Ord. 6784 (Repealer)
10419	Repeals Ord. 5424 (Repealer)
10420	Repeals Ord. 5391 (Repealer)
10421	Repeals Ord. 5391 (Repealer)
10422	Repeals Ord. 3843 (Repealer)
10423	Repeals Ord. 3816 (Repealer)
10424	Repeals Ord. 3492 (Repealer)
10425	Repeals Ord. 3426 (Repealer)
10426	Repeals Ord. 3411 (Repealer)
10427	Repeals Ord. 1168 (Repealer)
10428	Repeals Ord. 1451 (Repealer)
10429	Repeals Ord. 1101 (Repealer)
10430	Amends Ord. 727 (Special)
10431	Repeals Ord. 8225 (Repealer)
10432	Amends § 6.12.020(A)(2), vehicles for hire (6.12)
10433	Amends § 20.08.220, zoning (Repealed by 16653)
10434	Amends Ord. 8064, classification and compensation plan (Special)
10435	Amends Ord. 10344 (Special)

Ordinance Number	
10436	Amends § 7.16.020(D), animals (7.16)
10437	Amends § 12.88.030, traffic (12.88)
10438	Rezone (Special)
10439	Rezone (Special)
10440	Creates an additional district for the sale of alcoholic beverages (Special)
10441	Repeals Ord. 359 (Repealer)
10442	Repeals Ord. 398 (Repealer)
10443	Repeals Ord. 1428 (Repealer)
10444	Repeals Ord. 2482 (Repealer)
10445	Repeals Ord. 3341 (Repealer)
10446	Repeals Ord. 3601 (Repealer)
10447	Repeals Ord. 3842 (Repealer)
10448	Repeals Ord. 4024 (Repealer)
10449	Repeals Ord. 4370 (Repealer)
10450	Repeals Ord. 4776 (Repealer)
10451	Repeals Ord. 5123 (Repealer)
10452	Repeals Ord. 5470 (Repealer)
10453	Repeals Ord. 5880 (Repealer)
10454	Repeals Ord. 6389 (Repealer)
10455	Repeals Ord. 7439 (Repealer)
10456	Special privilege to permit encroachment of card reader (Special)
10457	Amends Ord. 8064, classification and compensation plan (Special)
10458	Amends Ord. 8064, classification and compensation plan (Special)
10459	Amends Ord. 8064, classification and compensation plan (Special)
10460	Amends Ord. 8064, classification and compensation plan (Special)
10461	Amends Ord. 8064, classification and compensation plan (Special)
10462	Amends Ord. 8064, classification and compensation plan (Special)
10463	Amends Ord. 8064, classification and compensation plan (Special)
10464	Grants temporary use of a portion of Shawver Park (Special)
10465	Grants temporary use of a portion of Shawver Park (Special)
10466	Amends Ord. 8464 (Special)
10467	Amends § 9.04.390, solid waste management (9.04)
10468	Amends § 12.44.180(B), traffic (12.44)
10469	Amends Ord. 8064, classification and compensation plan (Special)
10470	Amends Ord. 10389 (Special)
10471	Amends Ord. 10386 (Special)
10472	Vacation (Special)
10473	Creates an additional district for the sale of alcoholic beverages (Special)
10474	Creates "Safe 2000" steering committee (Special)
10475	Repeals Ord. 9916 (Repealer)
10476	Amends § 19.08.020, subdivisions (19.08)
10477	Amends § 20.08.220, zoning (Repealed by 16653)
10478	Rezone (Special)
10479	Amends § 9.52.161, fire prevention code (Repealed by 13356)
10480	Extends lease (Special)
10481	Amends § 3.04.050, revenue and finance (3.04)
10482	Amends lease agreement (Special)
10483	Amends lease agreement (Special)
10484	Amends Ord. 10403, employee compensation (2.64)
10485	Amends § 12.88.140, traffic (12.88)
10486	Amends § 12.88.010, traffic (12.88)
10487	Amends § 12.88.030, traffic (12.88)

Ordinance Number	
10488	Amends § 12.88.140, traffic (12.88)
10489	Amends § 12.88.010, traffic (12.88)
10490	Adds Ch. 6.34 and § 6.04.060 and amends §§ 6.04.020, 6.04.040, 6.12.010, 6.12.110, 6.16.550 and 6.24.010, vehicles for hire (6.04, 6.12, 6.16, 6.24, 6.34)
10491	Rezone (Special)
10492	Provides for 1991 general election (Special)
10493	Amends Ord. 8064, classification and compensation plan (Special)
10494	Amends Ord. 8064, classification and compensation plan (Special)
10495	Amends Ord. 8064, classification and compensation plan (Special)
10496	Amends Ord. 8064, classification and compensation plan (Special)
10497	Amends Ord. 8064, classification and compensation plan (Special)
10498	Amends Ord. 8064, classification and compensation plan (Special)
10499	Amends Ord. 8064, classification and compensation plan (Special)
10500	Creates an additional district for the sale of alcoholic beverages (Special)
10501	Creates an additional district for the sale of alcoholic beverages (Special)
10502	Amends §§ 18.20.190, 18.20.210 and 18.20.300, plumbing code (18.20)
10503	Adds Ch. 15.13 and repeals §§ 15.12.072 and 15.12.078—15.12.110, water (15.13)
10504	Special election (Repealed by 10536)
10505	Amends § 12.88.030, traffic (Not codified)
10506	Amends § 12.88.140, traffic (12.88)
10507	Amends § 20.66.120, zoning (Repealed by 16653)
10508	Rezone (Special)
10509	Rezone (Special)
10510	Rezone (Special)
10511	Creates an additional district for the sale of alcoholic beverages (Special)
10512	Creates an additional district for the sale of alcoholic beverages (Special)
10513	Amends Ord. 9576 (Special)
10514	Vacation (Special)
10515	Amends Ord. 8065, civil service rules and regulations (Special)
10516	Amends Ord. 8064, classification and compensation plan (Special)
10517	Amends Ord. 8064, classification and compensation plan (Special)
10518	Rezone (Special)
10519	Adds Ch. 9.10, trees (9.10)
10520	Creates an additional district for the sale of alcoholic beverages (Special)
10521	Amends § 19.04.540, subdivisions (19.04)
10522	Amends Ord. 10438 (Special)
10523	Rezone (Special)
10524	Adds Ch. 9.39, alternative fuels (9.39)
10525	Authorizes lease of certain property (Special)
10526	Authorizes lease of certain property (Special)
10527	Amends §§ 2.64.020 and 2.64.030, board of trustees (2.64)
10528	Amends Ord. 8064, classification and compensation plan (Special)
10529	Amends Ord. 8064, classification and compensation plan (Special)

Ordinance Number	
10530	Amends Ord. 8064, classification and compensation plan (Special)
10531	Amends Ord. 8064, classification and compensation plan (Special)
10532	Amends Ord. 8064, classification and compensation plan (Special)
10533	Amends Ord. 8064, classification and compensation plan (Special)
10534	Amends § 12.88.150, traffic (12.88)
10535	Amends § 12.88.150(O), traffic (12.88)
10536	Repeals Ord. 10504 (Repealer)
10537	Creates an additional district for the sale of alcoholic beverages (Special)
10538	Rezone (Special)
10539	Amends § 12.88.140, traffic (12.88)
10540	Amends § 12.88.070, traffic (12.88)
10541	Special privilege to temporarily close certain streets (Special)
10542	Special privilege to use certain streets and parking lots (Special)
10543	Amends § 9.04.370, solid waste management (9.04)
10544	Amends lease agreement (Special)
10545	Amends § 12.88.140, traffic (12.88)
10546	Amends § 19.24.010(A), subdivisions (19.24)
10547	Special privilege to encroach a portion of public right-of-way (Special)
10548	Special privilege to temporarily close certain streets (Special)
10549	Amends Ord. 8064, classification and compensation plan (Special)
10550	Amends Ord. 8064, classification and compensation plan (Special)
10551	Amends Ord. 8064, classification and compensation plan (Special)
10552	Amends Ord. 8064, classification and compensation plan (Special)
10553	Amends Ch. 18.08, building code (Repealed by 11836)
10554	Special privilege to permit and regulate construction of fuel storage facility (Special)
10555	Adds §§ 19.04.375 and 19.24.010(H) and amends §§ 19.04.240, 19.04.490, 19.04.500, 19.04.630, 19.28.070(A), 19.32.110(B) and repeals §§ 19.04.660 and 19.28.100, subdivisions (19.04, 19.24, 19.28, 19.32)
10556	Adds § 18.04.035, buildings (Repealed by 11904)
10557	Adds §§ 20.02.027 and 20.02.598 and amends §§ 20.02.546, 20.02.796, 20.02.800 and 20.08.030, zoning (Repealed by 16653)
10558	Amends § 18.04.030, buildings (Repealed by 11904)
10559	Amends § 20.66.050(C), zoning (Repealed by 11591)
10560	Amends §§ 20.66.275(B)(5)(d) and 20.66.300(B)(3)(d), zoning (Repealed by 16653)
10561	Adds § 20.66.255, zoning (Repealed by 16653)
10562	Rezone (Special)
10563	Rezone (Special)
10564	Authorizes participation for improvement of certain street (Special)
10565	Amends Ord. 7167 (Special)
10566	Repeals Ord. 6311 (Repealer)
10567	Repeals Ord. 1370 (Repealer)
10568	Repeals Ord. 1749 (Repealer)

Ordinance Number	
10569	Repeals Ord. 2146 (Repealer)
10570	Repeals Ord. 2307 (Repealer)
10571	Repeals Ord. 2815 (Repealer)
10572	Repeals Ord. 2938 (Repealer)
10573	Repeals Ord. 3035 (Repealer)
10574	Repeals Ord. 3123 (Repealer)
10575	Repeals Ord. 3183 (Repealer)
10576	Repeals Ord. 3344 (Repealer)
10577	Repeals Ord. 4677 (Repealer)
10578	Repeals Ord. 4907 (Repealer)
10579	Repeals Ord. 5026 (Repealer)
10580	Repeals Ord. 5079 (Repealer)
10581	Repeals Ord. 5138 (Repealer)
10582	Repeals Ord. 5460 (Repealer)
10583	Repeals Ord. 5505 (Repealer)
10584	Repeals Ord. 6782 (Repealer)
10585	Repeals Ord. 7279 (Repealer)
10586	Repeals Ord. 7740 (Repealer)
10587	Repeals Ord. 8025 (Repealer)
10588	Repeals Ord. 8941 (Repealer)
10589	Amends Ord. 7120 (Special)
10590	Amends § 20.06.030, zoning (Repealed by 16653)
10591	Special privilege to encroach over portion of public right-of-way (Special)
10592	Creates an additional district for the sale of alcoholic beverages (Special)
10593	Rezone (Special)
10594	Rezone (Special)
10595	Amends Ord. 8064, classification and compensation plan (Special)
10596	Adds text to § 9.12.010; amends §§ 9.12.070 and 9.12.780 and deletes § 9.12.010(25) and (43), health and safety (9.12)
10597	Amends § 7.08.070, animals (7.08)
10598	Amends §§ 9.44.100(H), 9.44.110(A) and (B) and 9.44.150(B), health and safety (9.44)
10599	Repeals § 9.12.800(G)(3) (9.12)
10600	Adds § 13.04.045 and amends §§ 13.04.020, 13.04.030 and 13.04.040, streets and sidewalks (13.04)
10601	Amends §§ 19.28.030 and 19.28.110(F), subdivisions (19.28)
10602	Creates an additional district for the sale of alcoholic beverages (Special)
10603	Creates an additional district for the sale of alcoholic beverages (Special)
10604	Amends § 12.88.140, traffic (12.88)
10605	Amends Ord. 8064, classification and compensation plan (Special)
10606	Amends § 19.04.540, subdivisions (19.04)
10607	Authorizes sale of certain property (Special)
10608	Rezone (Special)
10609	Amends § 12.88.050, traffic (12.88)
10610	Amends §§ 5.24.030, 5.24.070, 5.24.080, 5.24.100, 5.24.110 and 5.24.190, charitable solicitations (5.24)
10611	Amends Ord. 8064, classification and compensation plan (Special)
10612	Amends Ord. 9660 (Special)
10613	Special privilege to temporarily close portion of certain streets (Special)
10614	Amends § 3.32.020, revenue and finance (3.32)
10615	Adds § 2.16.050(M), administration (Repealed by 16888)
10616	Rezone (Special)
10617	Rezone (Special)
10618	Rezone (Special)
10619	Rezone (Special)

Ordinance Number	
10620	Adds § 12.88.180(G) and amends § 12.88.180(E) and (F), traffic (12.88)
10621	Rezone (Special)
10622	Street vacation (Special)
10623	Amends § 20.67.050(A), zoning (Repealed by 16653)
10624	Rezone (Special)
10625	Permits use of portion of Album Park (Special)
10626	Extends term of special privilege (Special)
10627	Extends term of special privilege (Special)
10628	Extends term of special privilege (Special)
10629	Amends Ord. 10167 (Special)
10630	Amends Ord. 8064, classification and compensation plan (Special)
10631	Amends Ord. 9604 (Special)
10632	Rezone (Special)
10633	Permits use of portion of Marwood Park (Special)
10634	Amends § 18.04.040, buildings and construction (Repealed by 11904)
10635	Temporarily amends Title 12 (Not codified)
10636	Special privilege to encroach over portion of public right-of-way (Special)
10637	Special privilege to encroach over portion of public right-of-way (Special)
10638	Special privilege to encroach over portion of public right-of-way (Special)
10639	Special privilege to encroach over portion of public right-of-way (Special)
10640	Amends §§ 20.48.020 and 20.50.020, zoning (Repealed by 16653)
10641	Amends §§ 20.36.020(30), 20.38.020(33), 20.40.020(45), 20.44.020(36), 20.45.030(H) and 20.48.020(C), zoning (Repealed by 16653)
10642	Adds §§ 20.02.242, 20.08.204, 20.10.040(V), 20.12.040(S), 20.14.040(T), 20.16.040(E), 20.18.060(P) and 20.20.040(Q), zoning (Repealed by 16653)
10643	Rezone (Special)
10644	Special privilege to encroach over portion of public right-of-way (Special)
10645	Special privilege to temporarily close portion of Old Pueblo Road (Special)
10646	Special privilege to encroach over portion of public right-of-way (Repealed by 12204)
10647	Amends § 12.88.070, vehicles and traffic (12.88)
10648	Amends § 12.88.140, vehicles and traffic (12.88)
10649	Lease agreement with El Paso ISD (Special)
10650	Special privilege to temporarily close portion of Pueblo Nuevo Circle (Special)
10651	Permits use of Hugo Meyer Field and Dudley Field parking lot (Special)
10652	Permits use of Album Park (Special)
10653	Repeals Ord. 9868 (Repealer)
10654	Vacation (Special)
10655	Special privilege to permit and regulate construction, maintenance and use of multiproducts pipelines (Special)
10656	Amends Ord. 8065, civil service rules and regulations (Special)

Ordinance Number	
10657	Amends §§ 9.44.020—9.44.050, midwives (9.44)
10658	Amends § 15.08.120, street rentals (15.08)
10659	Amends Ord. 8064, classification and compensation plan (Special)
10660	Lease of South El Paso Senior Citizen Center (Special)
10661	Adds Ch. 15.16, discharges to storm sewers (15.16)
10662	Vacation (Special)
10663	Creates ethics review commission (2.92)
10664	Amends § 20.61.100, zoning (Repealed by 16653)
10665	Amends § 20.61.060(K), zoning (Repealed by 16653)
10666	Amends § 20.61.060(G), zoning (Repealed by 16653)
10667	Adds § 20.62.020(L), zoning (Repealed by 16653)
10668	Rezone (Special)
10669	Rezone (Special)
10670	Rezone (Special)
10671	Rezone (Special)
10672	Creates an additional district for the sale of alcoholic beverages (Special)
10673	Repeals and replaces § 9.44.260(A)(3), midwives (Repealed by 12700)
10674	Creates locally owned, small, woman-owned and minority business advisory board (Not codified)
10675	Amends Ord. 8064, classification and compensation plan (Special)
10676	Amends § 12.88.070, vehicles and traffic (12.88)
10677	Permits use of Hugo Meyer Field and Dudley Field parking lot (Special)
10678	Adds § 2.44.090, courts (2.44)
10679	Rezone (Special)
10680	Amends Ord. 8064, classification and compensation plan (Special)
10681	Amends § 12.88.130(A) and (B)(5), vehicles and traffic (12.88)
10682	Adds § 9.04.370(A)(13) and (14), solid waste management (9.04)
10683	Designates Reinvestment Zone "E" (Special)
10684	Special privilege to temporarily close portion of Boston Street (Special)
10685	Lease agreement with Jose E. Krapp (Special)
10686	Adds § 20.62.060, zoning (Repealed by 16653)
10687	Vacation (Special)
10688	Special election for submission of charter amendments (Special)
10689	Special election for submission of charter amendments (Special)
10690	Amends § 12.88.070, vehicles and traffic (12.88)
10691	Amends § 12.88.140, vehicles and traffic (12.88)
10692	Amends § 12.88.030, vehicles and traffic (12.88)
10693	Amends § 9.04.360(A), solid waste management (Repealed by 11085)
10694	Adds §§ 12.44.280 and 12.88.200, vehicles and traffic (12.44, 12.88)
10695	Rezone (Special)
10696	Rezone (Special)
10697	Amends Ord. 8064, classification and compensation plan (Special)
10698	Amends Ord. 8065, civil service rules and regulations (Special)
10699	Amends Ord. 8064, classification and compensation plan (Special)
10700	Amends Ord. 8064, classification and compensation plan (Special)

Ordinance Number	
10701	Amends § 7.08.040(B), animals (7.08)
10702	Vacation (Special)
10703	Special privilege to temporarily close portion of Garibay Court (Special)
10704	Special privilege for placement of cribbing on Bridge of the Americas (Special)
10705	Amends fee structure for emergency medical services system (Special)
10706	Repeals Ord. 3790 (Repealer)
10707	Grants franchise to Life Ambulance Inc. (Special)
10708	Permits use of Hugo Meyer Field (Special)
10709	Amends § 9.04.380, solid waste management (9.04)
10710	Amends § 9.08.030(B), (D) and (E), junked vehicles (9.08)
10711	Amends Ord. 8064, classification and compensation plan (Special)
10712	Amends Ord. 8064, classification and compensation plan (Special)
10713	Amends Ord. 8064, classification and compensation plan (Special)
10714	Amends fee system for neighborhood health centers; repeals Ord. 10205 (Repealed by 12126)
10715	Rezone (Special)
10716	Rezone (Special)
10717	Amends Ord. 10180 (Special)
10718	Special privilege to temporarily close San Antonio Street (Special)
10719	Amends Ord. 10685 (Special)
10720	Levies 1991 taxes (Special)
10721	Amends Ord. 8064, classification and compensation plan (Special)
10722	Amends Ord. 8064, classification and compensation plan (Special)
10723	Amends §§ 18.08.080(B), 18.08.140, 18.08.220 and 18.08.250, building code (18.08)
10724	Amends § 2.16.030, zoning board of adjustment (Repealed by 16888)
10725	Amends admission fees to El Paso (Special)
10726	Amends §§ 7.08.070(D) and (E), 7.12.020(C), 7.16.020(D) and 7.16.030(B) and (E), animals (7.08, 7.12, 7.16)
10727	Special privilege to temporarily close certain streets in downtown (Special)
10728	Amends fee schedule for sexually transmitted disease lab services; repeals Ord. 10337 (Special)
10729	Amends fees for overseas travel immunizations and vaccinations; repeals Ord. 9397 (Special)
10730	Adds §§ 10.20.052 and 10.20.054 and amends §§ 10.20.010—10.20.050, offenses by or against minors (10.20)
10731	Rezone (Special)
10732	Adds § 20.08.220(C)(41) and amends § 20.08.220(C)(28) and (29), zoning (Repealed by 16653)
10733	Amends § 20.66.300, zoning (Repealed by 16304)
10734	Adds §§ 20.26.020(K) and (L) and 20.26.150; amends §§ 20.26.070(A) and 20.26.090, zoning (Repealed by 16653)
10735	Amends § 12.88.140, vehicles and traffic (12.88)

Ordinance Number	
10736	Amends Ord. 10688 (Special)
10737	Amends Ord. 10689 (Special)
10738	Adds § 13.24.200, city parks and recreation areas (Repealed by 14020)
10739	Establishes fee schedule for El Paso Public Library (Special)
10740	Rezone (Special)
10741	Rezone (Special)
10742	Amends Ord. 8064, classification and compensation plan (Special)
10743	Amends Ord. 8064, classification and compensation plan (Special)
10744	Amends Ord. 8064, classification and compensation plan (Special)
10745	Amends Ord. 8064, classification and compensation plan (Special)
10746	Amends Ord. 8064, classification and compensation plan (Special)
10747	Amends Ord. 8064, classification and compensation plan (Special)
10748	Rezone (Special)
10749	Amends Ord. 8064, classification and compensation plan (Special)
10750	Creates an additional district for the sale of alcoholic beverages (Repealed by 14153)
10751	Amends § 5.24.190(D), charitable solicitations (5.24)
10752	Adds § 12.32.062 and amends § 12.32.060, vehicles and traffic (12.32)
10753	Creates an additional district for the sale of alcoholic beverages (Repealed by 13439)
10754	Rezone (Special)
10755	Amends § 12.88.070, vehicles and traffic (12.88)
10756	Amends Ord. 8064, classification and compensation plan (Special)
10757	Amends Ord. 8064, classification and compensation plan (Special)
10758	Amends Ord. 8064, classification and compensation plan (Special)
10759	Amends Ord. 8064, classification and compensation plan (Special)
10760	Amends Ord. 8064, classification and compensation plan (Special)
10761	Amends Ord. 8064, classification and compensation plan (Special)
10762	Establishes fee schedule for El Paso Museum of History (Special)
10763	Adds § 2.40.020, museum department (2.40)
10764	Rezone (Special)
10765	Rezone (Special)
10766	Rezone (Special)
10767	Rezone (Special)
10768	Adds § 20.02.414 and amends § 20.60.040, zoning (Repealed by 16653)
10769	Adds § 12.88.130(H) and amends § 12.88.130(A) and (B)(5), vehicles and traffic (12.88)
10770	Special privilege to encroach over portion of public right-of-way (Special)
10771	Amends Ord. 8064, classification and compensation plan (Special)
10772	Amends Ord. 8064, classification and compensation plan (Special)
10773	Amends Ord. 8064, classification and compensation plan (Special)
10774	Amends Ord. 8064, classification and compensation plan (Special)
10775	Creates an additional district for the sale of alcoholic beverages (Special)
10776	Supplemental ordinance authorizing issuance of bonds (Special)
10777	Amends Ord. 8065, civil service rules and regulations (Special)
10778	Amends Ord. 8738 (Special)

Ordinance Number	
10779	Reopens portion of Tobin Place (Special)
10780	Amends § 13.08.160, excavations (13.08)
10781	Special privilege to encroach over portion of public right-of-way (Special)
10782	Special privilege to encroach over portion of public right-of-way (Special)
10783	Special privilege to encroach over portion of public right-of-way (Special)
10784	Amends Ord. 8064, classification and compensation plan (Special)
10785	Rezone (Special)
10786	Rezone (Special)
10787	Adds severability language to Ch. 9.50; amends § 9.50.010(D); repeals and replaces §§ 9.50.020, 9.50.030, 9.50.040, 9.50.110, 9.50.130 and 9.50.140; repeals §§ 9.50.010(G), 9.50.050, 9.50.060 and 9.50.070, smoking in public places (9.50)
10788	Amends § 13.24.200(D), city parks and recreation areas (Repealed by 14020)
10789	Amends Ord. 8064, classification and compensation plan (Special)
10790	Adds Ch. 19.40, subdivisions (19.40)
10791	Creates an additional district for the sale of alcoholic beverages (Special)
10792	Amends § 18.08.350, building code (18.08)
10793	Amends § 18.16.980, electrical code (18.16)
10794	Amends § 18.20.060(J), plumbing code (18.20)
10795	Amends § 18.24.060(G), gas code (18.24)
10796	Amends § 18.12.140(F), mechanical code (18.12)
10797	Amends §§ 20.66.100 and 20.66.110, zoning (Repealed by 16653)
10798	Amends § 18.44.150, grading (18.44)
10799	Amends §§ 19.08.040, 19.08.050, 19.08.060, 19.08.070, 19.08.080, 19.08.090, 19.08.100 and 19.08.110, subdivisions (19.08)
10800	Adds § 13.12.095 and amends § 13.12.050, driveways (13.12)
10801	Amends § 20.04.550 and repeals § 20.04.551(C), zoning (Repealed by 16653)
10802	Adds § 20.04.551.3 and amends § 20.08.310(A), zoning (Repealed by 16653)
10803	Amends § 20.04.551, zoning (Repealed by 16653)
10804	Adds § 20.04.551.2; repeals and replaces § 20.08.320(E) and repeals § 20.08.320(F), (G) and (H), zoning (Repealed by 16653)
10805	Adds § 20.04.551.1 and amends § 20.08.140, zoning (Repealed by 16653)
10806	Rezone (Special)
10807	Rezone (Special)
10808	Rezone (Special)
10809	Adds § 5.08.150, alcoholic beverages (5.08)
10810	Adds § 5.08.160, alcoholic beverages (5.08)
10811	Adds Ch. 5.112, bingo regulation (5.112)
10812	Adds § 5.08.055, alcoholic beverages (5.08)

Ordinance Number	
10813	Amends Ord. 8064, classification and compensation plan (Special)
10814	Amends Ord. 9898 (Special)
10815	Amends Ord. 9894 (Special)
10816	Amends Ord. 9900 (Special)
10817	Amends Ord. 9899 (Special)
10818	Adds §§ 20.02.062, 20.08.208, 20.12.040(U), 20.14.040(V), 20.20.040(S), 20.22.040(R), 20.24.040(Q), 20.28.040(Q) and 20.30.040(Q), zoning (Repealed by 16653)
10819	Amends §§ 20.04.280, 20.10.040(A), 20.12.040(A), 20.14.040(A), 20.20.040(A), 20.22.040(A), 20.24.040(A), 20.28.040(A), 20.30.040(A), 20.54.020 and 20.56.020, zoning (Repealed by 16653)
10820	Adds § 2.16.050(N), zoning board of adjustment (Repealed by 16888)
10821	Amends § 12.78.010, vehicles and traffic (12.78)
10822	Amends Ord. 8064, classification and compensation plan (Special)
10823	Amends Ch. 20.67, historic landmark preservation (Repealed by 16653)
10824	Rezone (Special)
10825	Rezone (Special)
10826	Rezone (Special)
10827	Rezone (Special)
10828	Amends project and financing plan for reinvestment zone one of tax increment district one (Special)
10829	Amends Ord. 8064, classification and compensation plan (Special)
10830	Amends Ord. 8064, classification and compensation plan (Special)
10831	Amends § 12.88.060(E), vehicles and traffic (12.88)
10832	Amends § 12.88.070, vehicles and traffic (12.88)
10833	Amends § 12.88.150(P)(8) and (9), vehicles and traffic (12.88)
10834	Amends § 12.88.150(O)(1) and (2), vehicles and traffic (12.88)
10835	Repeals Ord. 2115 (Repealer)
10836	Repeals Ord. 2215 (Repealer)
10837	Repeals Ord. 2530 (Repealer)
10838	Repeals Ord. 2653 (Repealer)
10839	Repeals Ord. 2917 (Repealer)
10840	Repeals Ord. 2992 (Repealer)
10841	Repeals Ord. 5332 (Repealer)
10842	Repeals Ord. 3092 (Repealer)
10843	Repeals Ord. 3427 (Repealer)
10844	Repeals Ord. 3676 (Repealer)
10845	Repeals Ord. 3711 (Repealer)
10846	Repeals Ord. 3854 (Repealer)
10847	Repeals Ord. 4013 (Repealer)
10848	Repeals Ord. 4757 (Repealer)
10849	Repeals Ord. 5174 (Repealer)
10850	Repeals Ord. 5232 (Repealer)
10851	Repeals Ord. 5305 (Repealer)
10852	Repeals Ord. 5361 (Repealer)
10853	Repeals Ord. 5395 (Repealer)
10854	Repeals Ord. 5401 (Repealer)
10855	Repeals Ord. 5493 (Repealer)
10856	Repeals Ord. 5506 (Repealer)
10857	Repeals Ord. 5572 (Repealer)
10858	Repeals Ord. 6984 (Repealer)
10859	Repeals Ord. 7027 (Repealer)
10860	Repeals Ord. 7232 (Repealer)
10861	Repeals Ord. 7563 (Repealer)
10862	Repeals Ord. 8117 (Repealer)
10863	Amends Ord. 8064, classification and compensation plan (Special)
10864	Amends Ord. 8064, classification and compensation plan (Special)
10865	Amends Ord. 8064, classification and compensation plan (Special)
10866	Amends § 7 of Rule 14 of Ord. 8065, civil service commission rules and regulations (Special)

Ordinance Number	
10867	Creates the greater El Paso civic, convention and tourism department and advisory board (Not codified)
10868	Amends § 19.32.070, subdivisions (91.32)
10869	Amends § 20.04.330(E), zoning (Repealed by 16653)
10870	Special privilege to encroach onto a portion of public rights-of-way (Special)
10871	Bond issuance (Special)
10872	Amends § 2.20.110, board of parks and recreation (2.20)
10873	Establishes fees for foreign trade zone 68; authorizes execution of user agreements (Special)
10874	Amends §§ 7 and 10 of Ord. 8820, medical services system (Not codified)
10875	Amends Schedule A of § 18.16.980(a), electrical code (18.16)
10876	Adds § 18.08.350(A)(8); amends § 18.08.350(A)(5)—(7), building code (18.08)
10877	Rezone (Special)
10878	Amends § 10.12.030, offenses against public peace (10.12)
10879	Repeals Ord. 2591 (Repealer)
10880	Repeals Ord. 3013 (Repealer)
10881	Repeals Ord. 5612 (Repealer)
10882	Repeals Ord. 5913 (Repealer)
10883	Repeals Ord. 5982 (Repealer)
10884	Repeals Ord. 5932 (Repealer)
10885	Repeals Ord. 6860 (Repealer)
10886	Repeals Ord. 7399 (Repealer)
10887	Establishes tracking system to monitor award of contracts and bids to selected business (Special)
10888	Amends Ord. 8064, classification and compensation plan (Special)
10889	Creates an additional district for the sale of alcoholic beverages (Special)
10890	Amends § 18.04.040(B), building code (Repealed by 11904)
10891	Amends § 12.88.140, vehicles and traffic (12.88)
10892	Amends § 12.88.070, vehicles and traffic (12.88)
10893	Special privilege permitting encroachment onto public right-of-way (Special)
10894	Creates an additional district for the sale of alcoholic beverages (Special)
10895	Special privilege permitting encroachment onto public right-of-way (Special)
10896	Special privilege permitting encroachment onto public right-of-way (Special)
10897	Amends §§ 2.64.050, 2.64.100, 2.64.120(B), 2.64.140 (introductory paragraph), 2.64.180 (second paragraph) and 2.64.210, city employees' pension fund (2.64)
10898	Rezone (Special)
10899	Rezone (Special)
10900	Rezone (Special)
10901	Rezone (Special)
10902	Adds § 9.04.210(D); amends §§ 9.04.060, 9.04.070(C), 9.04.220(A) and 9.04.400(A)(1), solid waste management (9.04)
10903	Authorizes lease to science museum (Special)
10904	Special privilege permitting encroachment onto public right-of-way (Special)

Ordinance Number	
10905	Adds § 13.04.015; amends §§ 13.04.020 and 13.04.040; repeals § 13.04.030, street and sidewalk construction and maintenance (13.04)
10906	Adds § 2.84.040; amends §§ 2.84.010, 2.84.020 and 2.84.030, handicapped grievance procedure (2.84)
10907	Amends § 12.44.280(B)(1), stopping, standing and parking (12.44)
10908	Amends § 12.88.070, vehicles and traffic (12.88)
10909	Adds § 13.08.175, excavations (13.08)
10910	Amends § 15.08.120(c), street rentals (15.08)
10911	Special privilege permitting encroachment onto public right-of-way (Special)
10912	Amends Ord. 9783, special privilege (Special)
10913	Amends project and financing plan for reinvestment zone one of tax increment district one (Special)
10914	Amends Ord. 8064, classification and compensation plan (Special)
10915	Amends Ord. 8064, classification and compensation plan (Special)
10916	Amends § 12.88.030, vehicles and traffic (12.88)
10917	Amends § 20.67.030(B), zoning (Repealed by 16653)
10918	Rezone (Special)
10919	Rezone (Special)
10920	Bond issuance (Special)
10921	Easement vacation (Special)
10922	Easement vacation (Special)
10923	Easement vacation (Special)
10924	Easement vacation (Special)
10925	Creates an additional district for the sale of alcoholic beverages (Special)
10926	Bond issuance (Special)
10927	Creates art museum advisory board (2.40)
10928	Amends §§ 9.04.070(c), 9.04.220(a) and 9.04.400(A)(1), solid waste management (9.04)
10929	Adds § 10.12.030(A)(2); amends § 10.12.030(B)(1), offenses against public peace (10.12)
10930	Amends § 2.16.060(A), zoning board of adjustment (Repealed by 16888)
10931	Amends § 12.88.140, vehicles and traffic (12.88)
10932	Rezone (Special)
10933	Bond issuance (Special)
10934	Amends § 2.16.060(B), zoning board of adjustment (Repealed by 16888)
10935	Easement vacation (Special)
10936	Special privilege permitting encroachment onto public right-of-way (Special)
10937	Amends Ord. 9974, special privilege (Repealed by 12009)
10938	Amends § 6.16.300, taxicabs (6.16)
10939	Amends § 12.88.030, vehicles and traffic (12.88)
10940	Amends Ord. 8064, classification and compensation plan (Special)
10941	Amends Ord. 8064, classification and compensation plan (Special)
10942	Amends §§ 15.13.020(C), 15.13.060(B) and 15.13.100(K), water conservation (15.13)
10943	Authorizes lease of Wellington Chew Senior Citizen Center for bingo (Special)

Ordinance Number	
10944	Authorizes lease of Washington Park Senior Citizen Center for bingo (Special)
10945	Grants special permit SP-91-36 (Special)
10946	Amends Ord. 8065, civil service commission rules and regulations (Special)
10947	Amends Ord. 8065, civil service commission rules and regulations (Special)
10948	Amends Ord. 8065, civil service commission rules and regulations (Special)
10949	Easement vacation (Special)
10950	Easement vacation (Special)
10951	Special privilege permitting encroachment onto public right-of-way (Special)
10952	Amends Ch. 9.76, fire lanes (Repealed by 13356)
10953	Rezone (Special)
10954	Permit Dickshire Distributing to use a portion of Shawver Park (Special)
10955	Permits Dickshire Distributing to use a portion of Shawver Park (Special)
10956	Rezone (Special)
10957	Adds §§ 12.04.155 and 12.40.030(F); and amends § 12.88.07, vehicles and traffic (12.04, 12.40, 12.88)
10958	Land exchange (Special)
10959	Repeals and replaces §§ 9.04.400(B), 9.04.410(A), (B) and (F), 9.04.420(A) and (B)(1), solid waste management (9.04)
10960	Tax and revenue certificate issuance (Special)
10961	Grants special permit SP-90-11 (Special)
10962	Rezone (Special)
10963	Amends Ord. 8064, classification and compensation plan (Special)
10964	Adds §§ 12.08.220(A)(171) and 12.44.020(L); amends § 12.44.170(A), vehicles and traffic (12.08, 12.44)
10965	Amends § 12.88.030, vehicles and traffic (12.88)
10966	Telephone franchise (Special)
10967	Special privilege permitting encroachment onto public right-of-way (Special)
10968	Creates an additional district for the sale of alcoholic beverages (Special)
10969	Amends Ord. 8064, classification and compensation plan (Special)
10970	Amends Ord. 8064, classification and compensation plan (Special)
10971	Adds Ch. 1285; amends § 12.84.010; repeals §§ 12.08.150—12.08.180 and 12.08.220, vehicles and traffic (12.84, 12.85)
10972	Rezone (Special)
10973	Amends subsection 20.42.020(51), zoning (Repealed by 16653)
10974	Amends § 12.88.060(E), vehicles and traffic (12.88)
10975	Adds § 17.08.250(C); repeals and replaces §§ 17.08.160, 17.08.170, 17.08.200 and 17.08.210, lodginghouses, tenement houses, hotels and motels (17.08)
10976	Amends Ord. 10663, ethics review-commission (2.92)
10977	Rezone (Special)

Ordinance Number	
10978	Rezone (Special)
10979	Rezone (Special)
10980	Amends Ord. 8064, classification and compensation plan (Special)
10981	Amends Ord. 8064, classification and compensation plan (Special)
10982	Amends Ord. 10704, special privilege (Special)
10983	Special privilege permitting construction of exit ramp for commercial traffic through area occupied by city's Delta Drive pump station adjacent to the Bridge of the Americas (Special)
10984	Authorizes amendment to golf course lease (Special)
10985	Repeals and replaces § 18.08.100, building code (Repealed by 11836)
10986	Amends § 12.88.030, vehicles and traffic (12.88)
10987	Amends § 12.88.070, vehicles and traffic (12.88)
10988	Amends § 12.88.140, vehicles and traffic (12.88)
10989	Special privilege permitting temporary closure of certain streets (Special)
10990	Adds § 12.56.030(F), parking meters (12.56)
10992	Grants special permit SP-92-01 (Special)
10993	Rezone (Special)
10994	Rezone (Special)
10995	Rezone (Special)
10996	Adds § 20.08.140(B)(10) and (11); repeals §§ 20.10.040(Q) and (V), 20.12.040(N) and (S), 20.14.040(O) and (T), 20.16.040(F), 20.18.060(H) and (O), 20.20.040(M) and (Q), 20.22.040(L), 20.24.040(L), 20.26.040(I), 20.28.040(K), 20.30.040(K) and 20.32.040(O), zoning (Repealed by 16653)
10997	Street vacation (Special)
10998	Amends Ord. 8064, classification and compensation plan (Special)
10999	Amends Ord. 8064, classification and compensation plan (Special)
11000	Amends Ord. 8064, classification and compensation plan (Special)
11001	Amends Ord. 9782, special privilege (Special)
11002	Rezone (Special)
11003	Amends § 20.64.010, zoning (Repealed by 16653)
11004	Adds §§ 20.02.214, 20.02.514, 20.02.614, 20.02.627, 20.02.628, 20.02.645.1, 20.08.209, 20.08.209.5, 20.36.030(O) and (Q), 20.38.030(O) and (Q), 20.40.030(O) and (Q), 20.42.020(78), 20.42.030(O) and (R), 20.42.040(M), 20.44.030(P) and (R), 20.45.030(H), 20.45.040(I), 20.46.020(12) and (13), 20.46.030(O), 20.46.040(N), 20.48.020(B)(30)—(33), 20.48.030(M), 20.50.020(B)(28)—(31), 20.50.030(M), 20.58.040(23)(i) and (k) and 20.60.040(14)(o) and (q), zoning (Repealed by 16653)
11005	Creates an additional district for the sale of alcoholic beverages (Special)
11006	Repeals § 9.52.161(C), (F), (G) and (H) (Repealed by 13356)
11007	Authorizes execution of lease with the El Paso Patriots, Inc. (Special)

Ordinance Number	
11008	Authorizes execution of lease with the director of the West Texas Amateur Sports Association (Special)
11009	Special privilege permitting American Garment Finishers Corporation to permit and regulate construction, maintenance and use of a twenty-four inch multi-products pipeline within a portion of Stevens Street (Special)
11010	Amends project and financing plan for reinvestment zone one of tax increment district one (Special)
11011	Extends lease with El Paso Regional Group of the Sierra Club (Special)
11012	Amends § 12.88.070, vehicles and traffic (12.88)
11013	Special privilege permitting use of certain street for a Memorial Day beach party (Special)
11014	Special privilege permitting use of certain street for a Fourth of July beach party (Special)
11015	Special privilege permitting use of certain street for a Labor Day beach party (Special)
11016	Special privilege in conjunction with '92 preview of homes (Special)
11017	Rezone (Special)
11018	Rezone (Special)
11019	Grants special permit 92-03 (Special)
11020	Amends Ord. 8064, classification and compensation plan (Special)
11021	Amends Ord. 8064, classification and compensation plan (Special)
11022	Amends Ord. 8064, classification and compensation plan (Special)
11023	Amends Ord. 8064, classification and compensation plan (Special)
11024	Amends Ord. 8064, classification and compensation plan (Special)
11025	Amends Ord. 8064, classification and compensation plan (Special)
11026	Amends Ord. 8064, classification and compensation plan (Special)
11027	Amends Ord. 8064, classification and compensation plan (Special)
11028	Amends Ord. 8064, classification and compensation plan (Special)
11029	Amends Ord. 8064, classification and compensation plan (Special)
11030	Amends Ord. 8064, classification and compensation plan (Special)
11031	Amends Ord. 8064, classification and compensation plan (Special)
11032	Amends Ord. 8064, classification and compensation plan (Special)
11033	Amends Ord. 8065, civil service commission, rules and regulations (Special)
11034	Amends Ord. 8065, civil service commission rules and regulations (Special)
11035	Easement vacation (Special)
11036	Special privilege permitting encroachment into public right-of-way (Special)
11037	Special privilege permitting encroachment into public right-of-way (Repealed by 11516)
11038	Special privilege permitting encroachment into public right-of-way (Special)
11039	Creates an additional district for the sale of alcoholic beverages (Special)
11040	Amends § 2.04.040, boards, commissions and committees (2.04)
11041	Rezone (Special)

Ordinance Number	
11042	Amends Ord. 10397, city council meetings (Not codified)
11043	Amends Ch. 17.20, fair housing ordinance (17.20)
11044	Amends § 13.08.175, excavations (13.08)
11045	Amends § 10.12.010, offenses against public peace (10.12)
11046	Rezone (Special)
11047	Rezone (Special)
11048	Amends § 2.44.040(A)(1), courts (2.44)
11049	Amends § 18.52.040, unsafe structures and conditions (18.52)
11050	Special privilege in conjunction with the annual Sacred Heart Church bazaar (Special)
11051	Extends effective date of Ord. 10971, vehicles and traffic (12.84, 12.85)
11052	Rezone (Special)
11053	Amends Ord. 9579, liquor district (Special)
11054	Amends Ord. 8064, classification and compensation plan (Special)
11055	Allows installation and operation of a temporary communication tower by Contel Cellular (Special)
11056	Amends Ord. 8064, classification and compensation plan (Special)
11057	Street vacation (Special)
11058	Amends Ord. 11014, special privilege (Special)
11059	Special privilege in conjunction with special olympics basketball tournament fundraiser (Special)
11060	Special privilege in conjunction with the fourth annual Ysleta street festival (Special)
11061	Rezone (Special)
11062	Amends § 12.88.070, vehicles and traffic (12.88)
11063	Amends §§ 13.24.120(A)(2) and (3) and 13.24.140; repeals § 13.24.170, city park and recreation areas (13.24)
11064	Authorizes signing of release and easement deed without warranty in conjunction with Zaragoza/Ysleta border station commercial toll facility (Special)
11065	Special privilege permitting encroachment onto public rights-of-way (Special)
11066	Amends § 19.28.110(F), subdivisions (19.28)
11067	Amends §§ 5.24.040, 5.24.060, 5.24.070 and 5.24.130; repeals §§ 5.24.050 and 5.24.100, charitable solicitations (5.24)
11068	Rezone (Special)
11069	Grant special permit SP 92-06 (Special)
11070	Amends § 12.88.140, vehicles and traffic (12.88)
11071	Adds § 12.04.152; amends §§ 12.40.030(F) and 12.88.020, vehicles and traffic (12.04, 12.40, 12.88)
11072	Amends § 12.88.010, vehicles and traffic (12.88)
11073	Grants special permit SP 92-07 (Special)
11074	Rezone (Special)
11075	Creates an additional district for the sale of alcoholic beverages (Special)
11076	Amends Ord. 8064, classification and compensation plan (Special)
11077	Amends Ord. 8064, classification and compensation plan (Special)
11078	Amends Ord. 8064, classification and compensation plan (Special)
11079	Amends Ord. 8064, classification and compensation plan (Special)

Ordinance Number	
11080	Amends Ord. 8064, classification and compensation plan (Special)
11081	Amends Ord. 8064, classification and compensation plan (Special)
11082	Amends Ord. 8064, classification and compensation plan (Special)
11083	Permits use of portion of Marwood Park in conjunction with an Autumfest (Special)
11084	Authorizes lease of senior citizen center for bingo (Special)
11085	Adds §§ 9.04.340(E), 9.04.350(C) and 9.04.360(D); amends § 9.04.360(a) and (c); repeals Ord. 10693, solid waste management (9.04)
11086	Rezone (Special)
11087	Amends Ord. 8064, classification and compensation plan (Special)
11088	Repeals § 12.88.130(B)(3) (Repealer)
11089	Amends § 12.88.070, vehicles and traffic (12.88)
11090	Amends § 12.88.030, vehicles and traffic (12.88)
11091	Amends § 12.88.010, vehicles and traffic (12.88)
11092	Special privilege permitting encroachment onto public right-of-way (Special)
11093	Special privilege permitting encroachment onto public right-of-way (Special)
11094	Repeals and replaces § 9.12.070(J), food and food handling establishments (9.12)
11095	Grants special permit SP 92-08 (Special)
11096	Adds §§ 19.04.145 and 19.04.205; amends §§ 19.04.060, 19.04.270; 19.04.540 and 19.08.020, subdivisions (19.04, 19.08)
11097	Adds §§ 20.02.229 and 20.02.306; amends §§ 20.02.027 and 20.02.456, zoning (Repealed by 16653)
11098	Amends lease agreement (Special)
11099	Amends Ord. 8064, classification and compensation plan (Special)
11100	Amends Ord. 8064, classification and compensation plan (Special)
11101	Amends Ord. 8064, classification and compensation plan (Special)
11102	Amends Ord. 8064, classification and compensation plan (Special)
11103	Amends Ord. 8064, classification and compensation plan (Special)
11104	Amends Ord. 8064, classification and compensation plan (Special)
11105	Grants special permit SP 92-04 (Special)
11106	Amends § 19.32.130(B), subdivisions (Repealed by 13022)
11107	Rezone (Special)
11108	Rezone (Special)
11109	Special privilege to temporarily close Garden Gate Way (Special)
11110	Adds § 20.61.060(M), zoning (Repealed by 16653)
11111	Rezone (Special)
11112	Authorizes execution of tax resale deed (Special)
11113	Creates additional district for the sale of alcoholic beverages (Repealed by 13642)
11114	Adds new subsection to § 12.88.140, vehicles and traffic (12.88)
11115	Authorizes execution of land lease with Border Patrol Museum and Memorial Foundation, Inc. (Special)

Ordinance Number	
11116	Special privilege granting encroachment onto public right-of-way (Special)
11117	Amends Ord. 8779, landscape and parking agreement (Special)
11118	Rezone (Special)
11119	Rezone (Special)
11120	Rezone (Special)
11121	Adds new subsection to § 12.88.030, parking, (12.88)
11122	Adds new subsection to § 12.88.070, vehicles and traffic (12.88)
11123	Adds new subsection to § 12.88.150(G), vehicles and traffic (12.88)
11124	Permits use of Hugo Meyer Field and Dudley Field parking lots (Special)
11125	Special privilege granting encroachment onto public right-of-way (Special)
11126	Special privilege granting encroachment onto public right-of-way (Special)
11127	Amends Ord. 8064, classification and compensation plan (Special)
11128	Amends Ord. 8064, classification and compensation plan (Special)
11129	Amends Ord. 8064, classification and compensation plan (Special)
11130	Amends Ord. 8064, classification and compensation plan (Special)
11131	Amends Ord. 8064, classification and compensation plan (Special)
11132	Amends Ord. 8064, classification and compensation plan (Special)
11133	Amends Ord. 8064, classification and compensation plan (Special)
11134	Amends Ord. 8064, classification and compensation plan (Special)
11135	Interlocal agreement with Socorro Independent School District for development and management of a park (Special)
11136	Adds new subsection to § 12.88.070, vehicles and traffic (12.88)
11137	Amends §§ 14.16.110(B)(1), (C)(intro) and (3), (E)(1)—(3), aircraft and airports (14.16)
11138	Street vacations (Special)
11139	Amends Ord. 8065, civil service commission rules and regulations (Special)
11140	Amends Ord. 8064, classification and compensation plan (Special)
11141	Amends Ord. 8064, classification and compensation plan (Special)
11142	Adds § 6.16.190(C), taximeters (6.16)
11143	Amends § 6.16.200, taxi rates from airport (6.16)
11144	Adds § 15.12.055, storm sewers and fuel contaminated discharges (15.12)
11145	Adds § 5.100.090(J), vendors and solicitors (5.100)
11146	Amends §§ 13.20.040 and 13.20.050, streets, sidewalks and public places (13.20)
11147	Rezone (Special)
11148	Rezone (Special)
11149	Rezone (Special)
11150	Rezone (Special)
11151	Grants special permit SP 92-11 (Special)
11152	Designates reinvestment zone "F" (Special)
11153	Amends Ord. 8064, classification and compensation plan (Special)
11154	Amends Ord. 8064, classification and compensation plan (Special)

Ordinance Number	
11155	Amends Ord. 8064, classification and compensation plan (Special)
11156	Amends Ord. 8064, classification and compensation plan (Special)
11157	Amends Ord. 8064, classification and compensation plan (Special)
11158	Amends Ord. 8064, classification and compensation plan (Special)
11159	Amends Ord. 8064, classification and compensation plan (Special)
11160	Amends Ord. 8064, classification and compensation plan (Special)
11161	Amends Ord. 5749, Magoffin home advisory board (Special)
11162	Special privilege to temporarily close portion of West San Antonio Street (Special)
11163	Special privilege to temporarily close certain streets (Special)
11164	Special privilege granting encroachment onto public right-of-way (Special)
11165	Adds new subsection to § 12.88.070, vehicles and traffic (12.88)
11166	Amends § 12.78.010(A), tolls for international bridges (12.78)
11167	Grants special permit SP 92-10 (Special)
11168	Grants special permit SP 92-12 (Special)
11169	Rezone (Special)
11170	Levies 1992 taxes (Special)
11171	Rezone (Special)
11172	Stormwater sewage system certificates of obligation (Special)
11173	Amends Ord. 8064, classification and compensation plan (Special)
11174	Amends Ord. 8064, classification and compensation plan (Special)
11175	Amends Ord. 8064, classification and compensation plan (Special)
11176	Amends Ord. 8064, classification and compensation plan (Special)
11178	Amends Ord. 8064, classification and compensation plan (Special)
11179	Amends Ord. 8064, classification and compensation plan (Special)
11180	Amends Ord. 8064, classification and compensation plan (Special)
11181	Amends Ord. 8064, classification and compensation plan (Special)
11182	Amends Ord. 8064, classification and compensation plan (Special)
11183	Amends Ord. 8064, classification and compensation plan (Special)
11184	Amends Ord. 8064, classification and compensation plan (Special)
11185	Amends Ord. 8064, classification and compensation plan (Special)
11186	Amends Ord. 8064, classification and compensation plan (Special)
11187	Amends Ord. 8064, classification and compensation plan (Special)
11188	Amends § 2.72.010, border relations committee (Not codified)
11189	Adds A103.7.4(a)(5) to § 18.20.060(J), buildings and construction (18.20)
11190	Special privilege to temporarily close portion of Gwen Evans Lane (Special)
11191	Rezone (Special)
11192	Rezone (Special)
11193	Repeals and replaces § 9.04.400(A)(1), solid waste management (9.04)
11194	Amends Ord. 8961, accessibility advisory committee for the handicapped (Special)
11195	Amends Ord. 8064, classification and compensation plan (Special)
11196	Amends Ord. 8064, classification and compensation plan (Special)

Ordinance Number	
11197	Amends Ord. 8064, classification and compensation plan (Special)
11198	Amends Ord. 8064, classification and compensation plan (Special)
11199	Amends Ord. 8064, classification and compensation plan (Special)
11200	Amends Ord. 8064, classification and compensation plan (Special)
11201	Amends Ord. 8064, classification and compensation plan (Special)
11202	Amends Ord. 8064, classification and compensation plan (Special)
11203	Creates additional district for sale of alcoholic beverages (Special)
11204	Establishes art festival plaza restoration advisory committee (Repealed by 12655)
11205	Rezone (Special)
11206	Rezone (Special)
11207	Grants special permit SP 92-13 (Special)
11208	Amends Ord. 9696, youth services advisory board (Special)
11209	Adds new subsection to § 12.88.070, vehicles and traffic (12.88)
11210	Amends Ord. 8064, classification and compensation plan (Special)
11211	Amends Ord. 8064, classification and compensation plan (Special)
11212	Amends Ord. 8064, classification and compensation plan (Special)
11213	Amends Ord. 8064, classification and compensation plan (Special)
11214	Adds new subsection to § 12.88.150(C), speed limits (Special)
11215	Amends §§ 6—9, 14, 21A, 22, 33, 34A, 35 and 41—46 [adds §§ 18.08.345, 18.08.385, 18.08.410, 18.08.420 and 18.08.430; amends §§ 18.08.060, 18.08.070, 18.08.080, 18.08.090, 18.08.140, 18.08.215, 18.08.220 and 18.08.350; repeals and amends § 18.08.330, buildings and construction (Repealed by 11836)
11216	Amends Ch. 18.12 in its entirety, mechanical code (Repealed by 11832)
11217	Amends Ch. 18.20 in its entirety, plumbing code (Repealed by 11835)
11218	Amends Ch. 18.24 in its entirety, gas code (Repealed by 11834)
11219	Amends § 3.16.130, revenue and finance (3.16)
11220	Amends interlocal agreement with Socorro Independent School District (Special)
11221	Rezone (Special)
11222	Rezone (Special)
11223	Rezone (Special)
11224	Rezone (Special)
11225	Amends § 15.16.010, prohibited discharges to storm sewers (15.16)
11226	Amends Ord. 8064, classification and compensation plan (Special)
11227	Amends Ord. 8064, classification and compensation plan (Special)
11228	Designates reinvestment zone "G" (Special)
11229	Grants special privilege to encroach onto portion of public right-of-way (Special)
11230	Amends Ch. 17.20 in its entirety, fair housing code (17.20)
11231	Repeals Ch. 13.36 (Repealer)
11232	Adds §§ 20.66.130(K)—(M), 20.66.180(D) and 20.66.192, signs (Repealed by 16653)
11233	Creates additional district for sale of alcoholic beverages (Special)

Ordinance Number	
11234	Grants special privilege to encroach onto public right-of-way (Special)
11235	Adds new subsection to § 12.88.150(B), vehicles and traffic (12.88)
11236	Amends § 12.88.070, vehicles and traffic (12.88)
11237	Amends § 12.88.070, vehicles and traffic (12.88)
11238	Amends § 9.16.010(I), nuisances (9.16)
11239	Amends § 9.04.340(A), littering and dumping (9.04)
11240	Rezone (Special)
11241	Rezone (Special)
11242	Grants special permit SP 92-17 (Special)
11243	Amends § 9.04.400(B), solid waste collection rates (9.04)
11244	Franchise grant to Border Trax, Inc. to operate non-emergency ambulance service (Special)
11245	Amends § 6.16.320(A), taxicabs (6.16)
11246	Repeals Ord. 6037 and Ord. 6242, housing rehabilitation advisory board (Repealer)
11247	Rezone (Special)
11248	Rezone (Special)
11249	Authorizes bond issuance (Special)
11250	Grants special permit SP 92-20 (Special)
11251	Grants special permit SP 92-18 (Special)
11252	Amends Ord. 8064, classification and compensation plan (Special)
11253	Amends Ord. 8064, classification and compensation plan (Special)
11254	Amends Ord. 8064, classification and compensation plan (Special)
11255	Amends Ord. 8064, classification and compensation plan (Special)
11256	Amends Ord. 8064, classification and compensation plan (Special)
11257	Adds Zone B to Schedule XVII of § 12.88.200, vehicles and traffic (12.88)
11258	Interlocal agreement with El Paso Independent School District (Special)
11259	Rezone (Special)
11260	Rezone (Special)
11261	Amends § 2.64.210(A) and (B), disability pensions (2.64)
11262	Authorizes issuance of contractual bonds (Special)
11263	Rezone (Special)
11264	Rezone (Special)
11265	Utility easement vacation (Special)
11266	Creates additional district for sale of alcoholic beverages (Special)
11267	Amends Ord. 8064, classification and compensation plan (Special)
11268	Amends Ord. 8064, classification and compensation plan (Special)
11269	Amends Ord. 8064, classification and compensation plan (Special)
11270	Amends Ord. 8064, classification and compensation plan (Special)
11271	Creates Ch. 2.70, Board Patrol Local Accountability Commission (2.70)
11272	Amends § 20.60.040(14)(i), zoning (Repealed by 16653)
11273	Adds new subsection to § 12.88.030, vehicles and traffic (12.88)
11274	Adds new subsection to § 12.88.070, vehicles and traffic (12.88)

Ordinance Number	
11275	Adds § 2.64.071, employee's pension fund (2.64)
11276	Amends Ord. 8064, classification and compensation plan (Special)
11277	Amends Ord. 8064, classification and compensation plan (Special)
11278	Amends Ord. 8064, classification and compensation plan (Special)
11279	Amends Ord. 8064, classification and compensation plan (Special)
11280	Amends Ord. 8064, classification and compensation plan (Special)
11281	Amends Ord. 8064, classification and compensation plan (Special)
11282	Amends Ord. 8065, civil service commission rules and regulations (Special)
11283	Utility easement vacation (Special)
11284	Rezone (Special)
11285	Rezone (Special)
11286	Rezone (Special)
11287	Rezone (Special)
11288	Water and sewer revenue bonds (Special)
11289	Creates additional district for sale of alcoholic beverages (Special)
11290	Creates additional district for sale of alcoholic beverages (Special)
11291	Lease authorization (Special)
11292	Lease authorization (Special)
11293	Grants special privilege to encroach onto portion of public right-of-way (Special)
11294	Rezone (Special)
11295	Rezone (Special)
11296	Amends Ord. 11111, rezone (Special)
11297	Amends Ord. 8064, classification and compensation plan (Special)
11298	Amends § 12.88.150, vehicles and traffic (12.88)
11299	Amends § 12.88.150, vehicles and traffic (12.88)
11300	Amends § 12.88.150, vehicles and traffic (12.88)
11301	Amends § 12.88.180, vehicles and traffic (12.88)
11302	Rezone (Special)
11303	Grants special permit SP92-23 (Special)
11304	Authorizes partial easement release (Special)
11305	Terminates Enterprise Zone agreement (Special)
11306	Bond issuance (Special)
11307	Tax levy (Special)
11308	Creates additional district for sale of alcoholic beverages (Repealed by 12901)
11309	Amends §§ 3.28.010, 3.28.020 and 3.28.030, claims against city funds (3.28)
11310	Grants special privilege to encroach onto portion of public right-of-way (Special)
11311	Amends § 12.88.070, vehicles and traffic (12.88)
11312	Amends Ord. 8064, classification and compensation plan (Special)
11313	Adds §§ 5.90.032 and 5.90.110; amends §§ 5.90.010, 5.90.020, 5.90.030, 5.90.060, 5.90.070, 5.90.080 and 5.90.100, security alarm systems (5.90)
11314	Zones certain property (Special)
11315	Rezone (Special)
11316	Amends §§ 20.38.040, 20.40.020, 20.44.020, 20.46.020, 20.48.020, 20.50.020 and 20.60.040, zoning (Repealed by 16653)
11317	Amends § 12.88.070, vehicles and traffic (12.88)
11318	Utility easement vacation (Special)

Ordinance Number	
11319	Creates additional district for the sale of alcoholic beverages (Special)
11320	Creates additional district for the sale of alcoholic beverages (Special)
11321	Creates additional district for the sale of alcoholic beverages (Special)
11322	Bond issuance (Special)
11323	Amends § 3.04.060(D) and (E), property taxes (Repealed by 16014)
11324	Rezone (Special)
11325	Amends §§ 18.08.060, 18.08.080, 18.08.420 and 18.08.430, building code (Repealed by 11836)
11326	Amends § 12.88.070, vehicles and traffic (12.88)
11327	Amends § 12.88.010, vehicles and traffic (12.88)
11328	1993 General Election (Special)
11329	Referendum election (Special)
11330	Amends §§ 2.64.030(B) and 2.64.040, city employees' pension fund (2.64)
11331	Rezone (Special)
11332	Amends Ord. 8064, classification and compensation plan (Special)
11333	Amends Ord. 8064, classification and compensation plan (Special)
11334	Amends Ord. 8064, classification and compensation plan (Special)
11335	Amends Ord. 8064, classification and compensation plan (Special)
11336	Amends Ord. 8064, classification and compensation plan (Special)
11337	Amends Ord. 8064, classification and compensation plan (Special)
11338	Amends §§ 6.12.050, 6.12.090, 6.16.070, 6.16.090, 6.16.100, 6.16.120, 6.16.140, 6.16.150, 6.20.050, 6.28.040, 6.32.030, 6.32.130, 6.34.030, 6.34.120, 6.34.150 and 6.36.040, vehicles for hire (6.12, 6.16, 6.20, 6.28, 6.32, 6.34, 6.36)
11339	Amends § 6.04.070, vehicles for hire (6.04)
11340	Amends § 20.34.020(A)(8), zoning (Repealed by 16653)
11341	Grants special permit SP93-01 (Special)
11342	Grants special privilege to encroach onto portion of public right-of-way (Special)
11343	Right-of-way vacation (Special)
11344	Grants easement (Special)
11345	Amends Ord. 8064, classification and compensation plan (Special)
11346	Amends Ord. 8064, classification and compensation plan (Special)
11347	Amends Ord. 8064, classification and compensation plan (Special)
11348	Amends § 12.88.030, vehicles and traffic (12.88)
11349	Bond issuance (Special)
11350	Creates additional district for sale of alcoholic beverages (Repealed by 13449)
11351	Amends Ord. 10791 (Special)
11352	Rezone (Special)
11353	Rezone (Special)
11354	Amends §§ 20.10.040, 20.12.040, 20.14.040, 20.16.040, 20.18.040, 20.20.040, 20.22.040, 20.24.040, 20.26.040, 20.28.040, 20.30.040, 20.32.040, 20.34.040, 20.36.040, 20.38.040, 20.40.040, 20.42.040, 20.44.040, 20.45.030, 20.46.020, 20.48.020, 20.50.020, 20.52.060, 20.54.060, 20.56.060, 20.58.050, 20.60.040 and 20.61.060, zoning (Repealed by 16653)

Ordinance Number	
11355	Adds § 20.02.538; amends §§ 20.10.020, 20.10.040, 20.12.040, 20.14.040, 20.16.040, 20.18.060, 20.20.040, 20.22.040, 20.24.040, 20.26.030, 20.26.040, 20.28.040, 20.30.040, 20.32.040, 20.34.030, 20.34.040, 20.36.020, 20.36.030, 20.36.040, 20.38.020, 20.38.030, 20.38.040, 20.40.020, 20.40.030, 20.40.040, 20.42.020, 20.42.030, 20.42.040, 20.44.020, 20.44.030, 20.44.040, 20.45.030, 20.45.040, 20.45.041, 20.46.020, 20.46.030, 20.46.040, 20.48.020, 20.48.030, 20.50.020, 20.50.030, 20.52.040, 20.52.060, 20.54.060, 20.56.060, 20.58.040, 20.58.050, 20.60.040, 20.60.050 and 20.61.060, zoning; repeals § 20.08.204 (Repealed by 16653)
11356	Amends Ord. 9782 (Repealed by 12010)
11357	Amends Ord. 9702 (Special)
11358	Amends Ord. 11328 (Special)
11359	Amends Ord. 11329 (Special)
11360	Amends Ord. 11075 (Special)
11361	Creates additional district for sale of alcoholic beverages (Special)
11362	Grants special privilege to ENMR Telephone Cooperative (Special)
11363	Amends Ords. 9272 and 10628 (Special)
11364	Amends Ord. 9783 (Special)
11365	Amends Ord. 9701 (Special)
11366	Grants special privilege to Vista Associates Ltd. (Special)
11367	Rezone (Special)
11368	Rezone (Special
11369	Rezone (Special)
11370	Rezone (Special)
11371	Rezone (Special)
11372	Rezone (Special)
11373	Rezone (Special)
11374	Rezone (Special)
11375	Grants special awning encroachment privilege (Special)
11376	Amends Ord. 8064, classification and compensation plan (Special)
11377	Amends Ord. 11350 (Special)
11378	Amends §§ 5.90.020 and 5.90.030, security alarm systems (5.90)
11379	Authorizes sale of certain property (Special)
11380	Grants special privilege permitting sign encroachment (Repealed by 13223)
11381	Grants special permit SP93-04 (Special)
11382	Grants special permit SP92-21 (Special)
11383	Grants special privilege permitting sign encroachment (Special)
11384	Grants special privilege to Downtown Development Association (Special)
11385	Grants special park use (Special)
11386	Adds § 20.02.707.1; amends §§ 20.02.715, 20.66.100, 20.66.255 and 20.66.275, zoning (Repealed by 16653)
11387	Designates reinvestment zone (Special)
11388	Rezone (Special)
11389	Grants special privilege permitting sign encroachment (Special)
11390	Amends Ord. 8064, classification and compensation plan (Special)
11391	Amends Ord. 8064, classification and compensation plan (Special)
11392	Amends Ord. 10705 (Special)
11393	Amends § 2.64.120(J), city employees' pension fund (Special)

Ordinance Number	
11394	Designates reinvestment zone (Special)
11395	Rezone (Special)
11396	Rezone (Special)
11397	Creates additional district for the sale of alcoholic beverages (Special)
11398	Amends § 12.88.070, vehicles and traffic (12.88)
11399	Amends §§ 5.90.020, 5.90.030 and 5.90.070(A), security alarm systems (5.90)
11400	Grants special permit SP93-05 (Special)
11401	Enterprise Zone project application fees (Special)
11402	Amends Ord. 11305 (Special)
11403	Amends § 20.18.050, zoning (Repealed by 16653)
11404	Amends § 20.18.090, zoning (Repealed by 14566)
11405	Creates additional district for the sale of alcoholic beverages (Special)
11406	Rezone (Special)
11407	Rezone (Special)
11408	Grants special privilege permitting block closure (Special)
11409	Adds § 5.100.090(J), vendors and solicitors (5.100)
11410	Amends §§ 13.20.040 and 13.20.050, miscellaneous street and sidewalk use regulations (13.20)
11411	Road vacation (Special)
11412	Grants special privilege permitting sign encroachment (Special)
11413	Grants special privilege permitting sign encroachment (Special)
11414	Rezone (Special)
11415	Amends Ord. 8064, classification and compensation plan (Special)
11416	Amends Reinvestment Zone One (Special)
11417	Authorizes building lease (Special)
11418	Authorizes special park use (Special)
11419	Amends Ord. 9974 (Repealed by 12009)
11420	Grants special privilege permitting banner placement (Special)
11421	Authorizes lease agreement (Special)
11422	Authorizes special park use (Special)
11423	Amends Ord. 8064, classification and compensation plan (Special)
11424	Amends Ord. 8064, classification and compensation plan (Special)
11425	Amends Ord. 8064, classification and compensation plan (Special)
11426	Amends Ord. 8064, classification and compensation plan (Special)
11427	Amends §§ 2.70.010 and 2.70.020, bond overview advisory committee (2.70)
11428	Bond issuance (Special)
11429	Repeals Ord. 8900 (Repealer)
11430	Grants special privilege permitting awning encroachment (Special)
11431	Amends Ord. 8064 classification and compensation plan (Special)
11432	Amends Ord. 8064 classification and compensation plan (Special)
11433	Amends Ord. 8064 classification and compensation plan (Special)
11434	Amends Ord. 8064 classification and compensation plan (Special)
11435	Amends Ord. 8064 classification and compensation plan (Special)
11436	Amends § 20.04.280, zoning (Special)
11437	Rezone (Special)

Ordinance Number	
11438	Amends Ord. 8064, classification and compensation plan (Special)
11439	Authorizes lease agreement (Special)
11440	Grants special privilege permitting sign encroachment (Special)
11441	Grants special privilege for temporary street closure (Special)
11442	Grants special privilege for temporary street closure (Special)
11443	Grants special permit SP93-06 (Special)
11444	Rezone (Special)
11445	Rezone (Special)
11446	Rezone (Special)
11447	Rezone (Special)
11448	Amends Ord. 10323 (Special)
11449	Street vacation (Special)
11450	Street vacation (Special)
11451	Grants special permit SP93-07 (Special)
11452	Grants special permit SP93-08 (Special)
11453	Grants special privilege authorizing temporary block closure (Special)
11454	Grants special privilege authorizing temporary block closure (Special)
11455	National Electrical Code and Technical Provisions; repeals Ords. 8936, 9478, 10793, 10875 (Repealed by 11833)
11456	Adds § 20.02.566; amends § 20.66.130(K), zoning (Repealed by 16653)
11457	Rezone (Special)
11458	Rezone (Special)
11459	Creates additional district for the sale of alcoholic beverages (Repealed by 14529)
11460	Amends Ord. 10123 (Special)
11461	Amends Ord. 11233 (Repealed by 14154)
11462	Creates additional district for the sale of alcoholic beverages (Special)
11463	Grants ambulance franchise (Repealed by 11819)
11464	Amends § 12.88.140, vehicles and traffic (12.88)
11465	Amends Ord. 8064, classification and compensation plan (Special)
11466	Grants special privilege to Chevron (Special)
11467	Grants special privilege permitting road closure (Special)
11468	Amends Ord. 9414 (Special)
11469	Provides for membership expansion in various boards and commissions (Repealed by 16353)
11470	Authorizes special park use (Special)
11471	Grants special privilege to MSG Properties (Special)
11472	Grants special privilege to Scott Bros. Construction Co. (Special)
11473	Grants special privilege permitting canopy encroachment (Special)
11474	Amends Ord. 8065, Civil Service Commission Rules and Regulations (Special)
11475	Amends Ord. 8064 classification and compensation plan (Special)
11476	Amends § 18.08.140, building code (Repealed by 11836)
11477	Amends § 18.08.140, building code (Repealed by 11836)
11478	Rezone (Special)
11479	Rezone (Special)
11480	Rezone (Special)
11481	Rezone (Special)
11482	Amends § 15.08.120, street rentals (15.08)

Ordinance Number	
11483	Amends § 9.12.875(A), food and food handling establishments (9.12)
11484	Adds §§ 19.04.195, 19.04.352, 19.04.465, 19.04.467, 19.04.585 and Ch. 19.44; amends §§ 19.04.450, 19.08.130, 19.20.040, 19.28.110 and 19.28.170, subdivisions (19.04, 19.08, 19.20, 19.28, 19.44)
11485	Rezone (Special)
11486	Amends § 12.44.020, stopping, standing and parking (12.44)
11487	Amends Ord. 8065, Civil Service Commission Rules and Regulations (Special)
11488	Amends Ord. 8064, classification and compensation plan (Special)
11489	Amends Ord. 8064, classification and compensation plan (Special)
11490	Amends Ord. 8064, classification and compensation plan (Special)
11491	Authorizes special park use (Special)
11492	Creates additional district for the sale of alcoholic beverages (Special)
11493	Grants special permit SP93-10 (Special)
11494	Rezone (Special)
11495	Rezone (Special)
11496	Grants franchise (Special)
11497	Amends Ord. 6801 (Special)
11498	Grants special privilege permitting canopy encroachment (Special)
11499	Grants special privilege permitting sign encroachment (Special)
11500	Authorizes development agreement (Special)
11501	Grants special permit SP93-09 (Special)
11502	Rezone (Special)
11503	Rezone (Special)
11504	Amends § 13.24.200, city park and recreation areas (Repealed by 14020)
11505	Authorizes special park use (Special)
11506	Authorizes special park use (Special)
11507	Amends § 5.24.020(A) and (C), charitable solicitations (Repealed by 16724)
11508	Amends Ord. 7843 (Special)
11509	Amends Ord. 8064, classification and compensation plan (Special)
11510	Amends Ord. 8064, classification and compensation plan (Special)
11511	Amends Ord. 9414 (Special)
11512	Amends § 12.08.070, vehicles and traffic (12.08)
11513	Amends § 12.88.030, vehicles and traffic (12.88)
11514	Adds § 12.08.145, vehicles and traffic (12.08)
11515	Amends § 18.08.140, building code (Repealed by 11836)
11516	Repeals Ord. 11037 (Repealer)
11517	Amends Ord. 10867 (Special)
11518	Amends §§ 2.40.030 and 2.40.040, museum department (2.40)
11519	Approves special privilege assignment (Special)
11520	Approves special privilege assignment (Special)
11521	Amends Ord. 10674 (Special)
11522	Amends Ord. 11204 (Special)
11523	Amends Ord. 6964 (Repealed by 12606)
11524	Amends §§ 2.84.010 and 2.84.020 accessibility grievance committee (2.84)
11525	Amends Ord. 8961 (Special)
11526	Amends Ord. 8392 (Special)

Ordinance Number	
11527	Creates additional district for the sale of alcoholic beverages (Special)
11528	Approves special privilege assignment (Special)
11529	Approves special privilege assignment (Special)
11530	Appeals § 10.12.020 (Repealer)
11531	Amends § 15.12.120-1, water and sewer system (15.12)
11532	Amends Ord. 9722 (Special)
11533	Amends Ord. 9980 (Repealed by 14880)
11534	Amends Ord. 8471 (Special)
11535	Amends Ord. 8820 (Special)
11536	Prescribes fiscal year (Special)
11537	Lease authorization (Special)
11538	Amends Ord. 8064, classification and compensation plan (Special)
11539	Grants special permit SP93-12 (Special)
11540	Rezone (Special)
11541	Rezone (Special)
11542	Amends § 20.08.201, zoning (Repealed by 16653)
11543	Rezone (Special)
11544	Amends Ord. 9696 (Special)
11545	Amends § 15.16.020-1, discharges to storm sewers and other public rights-of-way (15.16)
11546	Amends § 12.44.170(E), stopping, standing and parking (12.44)
11547	Grants special privilege permitting sign encroachment (Special)
11548	Easement vacation (Special)
11549	Amends Ord. 11352 (Special)
11550	Grants special permit SP93-14 (Special)
11551	Amends § 12.88.140, vehicles and traffic (12.88)
11552	Amends Ord. 8064 classification and compensation plan (Special)
11553	Amends Ord. 8064 classification and compensation plan (Special)
11554	Amends Ord. 8064 classification and compensation plan (Special)
11555	Amends Ord. 8064 classification and compensation plan (Special)
11556	Amends Ord. 8064 classification and compensation plan (Special)
11557	Amends Ord. 8064 classification and compensation plan (Special)
11558	Amends Ord. 8064 classification and compensation plan (Special)
11559	Amends Ord. 8064 classification and compensation plan (Special)
11560	Amends Ord. 8064 classification and compensation plan (Special)
11561	Amends Ord. 8064 classification and compensation plan (Special)
11562	Creates additional district for the sale of alcoholic beverages (Special)
11563	Amends §§ 9.52.050, 9.52.070 and 9.52.170; repeals and replaces §§ 9.52.010, 9.52.020, 9.52.060 and 9.52.280, fire prevention code; repeals § 9.52.040 (Repealed by 13356)
11564	Easement vacation (9.52)
11565	Grants special privilege permitting canopy encroachment (Repealed by 11931)
11566	Rezone (Special)
11567	Rezone (Special)
11568	Amends Ord. 10750 (Special)
11569	Amends §§ 5.90.010(I), 5.90.020(D), 5.90.030, 5.90.032, 5.90.060 and 5.90.080(A), security alarm systems (5.90)
11570	Amends Ord. 11498 (Special)
11571	1993 tax levy (Special)
11572	Amends § 15.08.120, street rentals (15.08)

Ordinance Number	
11573	Amends Ord. 11042 (Special)
11574	Amends Ord. 8064, classification and compensation plan (Special)
11575	Amends Ord. 8064, classification and compensation plan (Special)
11576	Creates additional district for the sale of alcoholic beverages (Special)
11577	Creates additional district for the sale of alcoholic beverages (Special)
11578	Amends Ord. 11113 (Special)
11579	Creates additional district for the sale of alcoholic beverages (Special)
11580	Grants special privilege permitting sign encroachment (Special)
11581	Grants special privilege to temporarily close certain streets (Special)
11582	Grants special privilege to temporarily close certain streets (Special)
11583	Grants special privilege to permit sign encroachment (Repealed by 13221)
11584	Grants special permit SP93-15 (Special)
11585	Rezone (Special)
11586	Rezone (Special)
11587	Rezone (Special)
11588	Rezone (Special)
11589	Amends § 12.88.140, vehicles and traffic (12.88)
11590	Amends § 18.16.700, electrical code (Repealed by 11833)
11591	Repeals §§ 20.66.050 and 20.66.060 (Repealer)
11592	Easement vacation (Special)
11593	Amends §§ 2.64.030, 2.64.140 and 2.64.200, city employees' pension fund (2.64)
11594	Amends Ord. 9632 (Special)
11595	Creates additional district for the sale of alcoholic beverages (Special)
11596	Creates additional district for the sale of alcoholic beverages (Special)
11597	Grants special permit SP93-16 (Special)
11598	Establishes international bridge commission (Special)
11599	Creates additional district for the sale of alcoholic beverages (Special)
11600	Creates additional district for the sale of alcoholic beverages (Special)
11601	Amends § 12.88.150, vehicles and traffic (12.88)
11602	Grants special permit SP93-13 (Special)
11603	Rezone (Special)
11604	Amends § 18.08.070, building code (18.08)
11605	Special privilege granting encroachment onto public right-of-way (Repealed by 11982)
11606	Special privilege granting encroachment onto public right-of-way (Special)
11607	Special privilege granting encroachment onto public right-of-way (Repealed by 11981)
11608	Special privilege granting encroachment onto public right-of-way (Special)
11609	Special privilege granting encroachment onto public right-of-way (Special)
11610	Special privilege granting encroachment onto public right-of-way (Repealed by 11980)

Ordinance Number	
11611	Special privilege granting encroachment onto public right-of-way (Special)
11612	Special privilege granting encroachment onto public right-of-way (Special)
11613	Special privilege granting encroachment onto public right-of-way (Repealed by 11979)
11614	Special privilege granting encroachment onto public right-of-way (Repealed by 11978)
11615	Special privilege granting encroachment onto public right-of-way (Repealed by 11971)
11616	Special privilege granting encroachment onto public right-of-way (Repealed by 11970)
11617	Special privilege granting encroachment onto public right-of-way (Special)
11618	Special privilege granting encroachment onto public right-of-way (Special)
11619	Special privilege granting encroachment onto public right-of-way (Special)
11620	Special privilege granting encroachment onto public right-of-way (Special)
11621	Special privilege granting encroachment onto public right-of-way (Special)
11622	Special privilege granting encroachment onto public right-of-way (Repealed by 11972)
11623	Special privilege granting encroachment onto public right-of-way (Repealed by 11973)
11624	Special privilege granting encroachment onto public right-of-way (Repealed by 11974)
11625	Special privilege granting encroachment onto public right-of-way (Special)
11626	Special privilege granting encroachment onto public right-of-way (Repealed by 11975)
11627	Special privilege granting encroachment onto public right-of-way (Special)
11628	Special privilege granting encroachment onto public right-of-way (Special)
11629	Special privilege granting encroachment onto public right-of-way (Repealed by 11976)
11630	Amends § 2.80.040, cable communications commission (Repealed by 16625)
11631	Amends § 18.16.050, electrical code (Repealed by 11833)
11632	Amends § 18.12.070, mechanical code (Repealed by 11832)
11633	Amends § 18.20.070, plumbing code (18.20)
11634	Amends § 18.24.080, gas code (18.24)
11635	Adds Ch. 15.17, cable television rate regulations (15.17)
11636	Adds Ch. 15.18, cable television customer service regulations (15.18)
11637	Rezone (Special)
11638	Creates additional district for the sale of alcoholic beverages (Special)
11639	Creates additional district for the sale of alcoholic beverages (Special)
11640	Adds Ch. 13.25, El Paso Zoo (13.25)

Ordinance Number	
11641	Adds §§ 9.04.460 and 9.40.470; amends §§ 9.04.060 and 9.04.400, solid waste management (9.04)
11642	Rezone (Special)
11643	Amends §§ 12.52.050 and 12.88.060, vehicles and traffic (12.52, 12.88)
11644	Creates additional district for the sale of alcoholic beverages (Special)
11645	Creates additional district for the sale of alcoholic beverages (Special)
11646	Creates additional district for the sale of alcoholic beverages (Repealed by 12995)
11647	Bond issuance (Special)
11648	Grants special permit SP93-11 (Special)
11649	Rezone (Special)
11650	Amends Ords. 9701 and 11365 (Special)
11651	Amends Ords. 9272 and 11363 (Special)
11652	Approves assignment of special privilege (Special)
11653	Amends § 15.08.120, street rentals (15.08)
11654	Amends § 2.64.240, city employees pension fund (2.64)
11655	Amends Ords. 9969 (Repealed by 16756)
11656	Amends § 12.88.150, vehicles and traffic (12.88)
11657	Amends § 12.88.150, vehicles and traffic (12.88)
11658	Amends § 12.88.150, vehicles and traffic (12.88)
11659	Amends § 12.88.150, vehicles and traffic (12.88)
11660	Amends § 12.88.150, vehicles and traffic (12.88)
11661	Amends § 12.88.150, vehicles and traffic (12.88)
11662	Special privilege granting encroachment onto public right-of-way (Special)
11663	Special privilege granting encroachment onto public right-of-way (Repealed by 11977)
11664	Special privilege granting encroachment onto public right-of-way (Special)
11665	Amends § 13.25.030, El Paso Zoo (13.25)
11666	Land conveyance (Special)
11667	Amends §§ 20.10.030, 20.12.030, 20.14.020, 20.18.050, 20.20.030, 20.22.030, 20.24.030, 20.54.040, 20.56.040 and 20.61.040, zoning (Repealed by 16653)
11668	Amends Ord. 763 (Special)
11669	Grants special permit SP93-18 (Special)
11670	Special privilege granting encroachment onto public right-of-way (Repealed by 11855)
11671	Special privilege granting encroachment onto public right-of-way (Repealed by 11915)
11672	Special privilege granting encroachment onto public right-of-way (Special)
11673	Special privilege granting encroachment onto public right-of-way (Repealed by 11914)
11674	Special privilege granting encroachment onto public right-of-way (Special)
11675	Grants special permit SP93-19 (Special)
11676	Amends Ord. 8064, classification and compensation plan (Special)

Ordinance Number	
11677	Amends Ord. 8064, classification and compensation plan (Special)
11678	Amends §§ 20.67.050, 20.67.080, 20.67.100, 20.67.105, 20.67.110 and 20.67.180, zoning (Repealed by 16653)
11679	Grants bench placement franchise (Special)
11680	Amends § 2.64.190 and 2.64.200, employee pension fund (2.64)
11681	Amends Ord. 9468, alcoholic beverage district (Special)
11682	Bond issuance (Special)
11683	Amends § 12.88.200, vehicles and traffic (12.88)
11684	Amends § 12.88.140, vehicles and traffic (12.88)
11685	Amends § 12.88.140, vehicles and traffic (12.88)
11686	Special privilege granting encroachment onto public right-of-way (Special)
11687	Utility easement vacation (Special)
11688	Easement vacation (Special)
11689	Creates additional district for the sale of alcoholic beverages (Repealed by 13695)
11690	Amends certain project and financing plan (Special)
11691	Grants ambulance franchise (Special)
11692	Alley vacation (Repealed by 11781)
11693	Street vacation (Special)
11694	Utility easement vacation (Special)
11695	Amends Ord. 11614, right-of-way use (Special)
11696	Grants special permit SP93-20 (Special)
11697	Special privilege granting encroachment onto public right-of-way (Repealed by 11854)
11698	Amends Ord. 9701, right-of-way use (Special)
11699	Amends Ord. 11466, right-of-way use (Special)
11700	Amends Ord. 9272, right-of-way use (Special)
11701	Repeals and replaces §§ 12.40.100, 12.40.110 and 12.88.110, vehicles and traffic; repeals § 12.88.120 (12.40, 12.88)
11702	Repeals and replaces Ch. 9.56, transportation of hazardous materials (Repealed by 13356)
11703	Grants bus bench franchise (Special)
11704	Grants bus bench franchise (Special)
11705	Amends §§ 13.08.020 and 13.08.175, excavations (13.08)
11706	Amends §§ 18.44.030, 18.44.080, 18.44.130 and 18.44.190, grading (18.44)
11707	Amends §§ 13.12.020 and 13.12.040, driveways (13.12)
11708	Amends § 15.12.050, water and sewer system (15.12)
11709	Amends § 13.04.015, streets, sidewalks and public places (13.04)
11710	Amends Ord. 8064, classification and compensation plan (Special)
11711	Amends Ord. 8064, classification and compensation plan (Special)
11712	Amends Ord. 8064, classification and compensation plan (Special)
11713	Amends Ord. 8064, classification and compensation plan (Special)
11714	Amends Ord. 8064, classification and compensation plan (Special)

Ordinance Number	
11715	Creates additional district for the sale of alcoholic beverages (Special)
11716	Creates additional district for the sale of alcoholic beverages (Special)
11717	Rezone (special)
11718	Rezone (Special)
11719	Rezone (Special)
11720	Rezone (Special)
11721	Authorizes property sale (Special)
11722	Grants special privilege to establish communication cable (Special)
11723	Amends Ord. 11612, right-of-way use (Special)
11724	Grants special privilege to establish telecommunication system (Special)
11725	Rezone (Special)
11726	Rezone (Special)
11727	Rezone (Special)
11728	Rezone (Special)
11729	Amends Ords. 11498 and 11570, right-of-way use (Special)
11730	Amends Ord. 11499, right-of-way use (Special)
11731	Amends Ord. 11580, right-of-way use (Special)
11732	Amends Ord. 11583, right-of-way use (Repealed by 13221)
11733	Amends Ord. 11547, right-of-way use (Special)
11734	Amends Ord. 11471, right-of-way use (Special)
11735	Amends Ord. 11473, right-of-way use (Special)
11736	Amends § 13.24.040, city park and recreation areas (13.24)
11737	Utility easement vacations (Special)
11738	Amends Ord. 10993, rezone (Special)
11739	Amends § 12.88.150, vehicles and traffic (12.88)
11740	Amends § 12.88.150, vehicles and traffic (12.88)
11741	Amends § 12.88.150, vehicles and traffic (12.88)
11742	Amends § 12.88.070, vehicles and traffic (12.88)
11743	Creates additional district for the sale of alcoholic beverages (Special)
11744	Amends Ord. 11577, liquor district establishment (Special)
11745	Amends § 9.04.420, solid waste management (9.04)
11746	Amends Ord. 8065, civil service regulations (Special)
11747	Amends Ord. 8065, civil service regulations (Special)
11748	Amends Ord. 8065, civil service regulations (Special)
11749	Amends Ord. 8065, civil service regulations (Special)
11750	Amends Ord. 8064, classification and compensation plan (Special)
11751	Amends § 18.08.060, building code (Repealed by 1836)
11752	Amends § 18.20.065, plumbing code (Repealed by 11835)
11753	Amends § 18.12.060, mechanical code (Repealed by 11832)
11754	Amends § 18.16.410, electrical code (Repealed by 11833)
11755	Rezone (Special)
11756	Rezone (Special)
11757	Special privilege granting encroachment onto public right-of-way (Special)
11758	Amends § 12.40.070, vehicles and traffic (12.40)

Ordinance Number	
11759	Amends § 12.88.040, vehicles and traffic (12.88)
11760	Amends § 13.24.200, city park and recreation areas (Repealed by 14020)
11761	Rezone (Special)
11762	Rezone (Special)
11763	Rezone (Special)
11764	Rezone (Special)
11765	Rezone (Special)
11766	Amends Ord. 11621, right-of-way use (Special)
11767	Amends Ord. 11611, right-of-way use (Special)
11768	Special privilege granting encroachment onto public right-of-way (Repealed by 12130)
11769	Amends Ord. 8064, classification and compensation plan (Special)
11770	Amends Ord. 8064, classification and compensation plan (Special)
11771	Amends Ord. 8064, classification and compensation plan (Special)
11772	Amends Ord. 8064, classification and compensation plan (Special)
11773	Amends Ord. 8064, classification and compensation plan (Special)
11774	Amends Ord. 8064, classification and compensation plan (Special)
11775	Rezone (Special)
11776	Amends Ord. 8924, liquor district establishment (Special)
11777	Amends Ord. 9013, liquor district establishment (Special)
11778	Amends Ord. 10409, liquor district establishment (Special)
11779	Amends Ord. 9918, stadium lease (Special)

11780	Amends Ord. 9717 environmental advisory committee (Special)
11781	Repeals Ord. 11692 and vacates alley (Special)
11782	Repeals Ord. 8758 (Repealer)
11783	Amends § 13.32.120, parades (13.32)
11784	Bond election (Special)
11785	Charter amendment special election (Special)
11786	Park land special election (Special)
11787	Referendum election (Special)
11788	Amends Ord. 11623, right-of-way use (Special)
11789	Amends Ord. 11662, right-of-way use (Special)
11790	Amends § 18.08.070, building code (T. 18)
11791	Amends § 18.20.070, plumbing code (Repealed by 11835)
11792	Amends § 18.16.700, electrical code (Repealed by 11833)
11793	Lease authorization (Special)
11794	Lease authorization (Special)
11795	Rezone (Special)
11796	Rezone (Special)
11797	Amends Ord. 11663, right-of-way use (Special)
11798	Grants special privilege to establish telecommunication system (Special)
11799	Amends Ord. 8064, classification and compensation plan (Special)
11800	Establishes soccer field lease (Special)
11801	Creates additional district for the sale of alcoholic beverages (Special)
11802	Rezone (Special)
11803	Rezone (Special)
11804	Rezone (Special)
11805	Rezone (Special)
11806	Repeals Ch. 13.40 (Repealer)
11807	Special privilege granting encroachment onto public right-of-way (Repealed by 13397)
11808	Amends Ord. 9335, authorizing alley use (Special)
11809	Rezone (Special)
11810	Rezone (Special)
11811	Rezone (Special)
11812	Rezone (Special)
11813	Street vacation (Special)
11814	Bond issuance (Special)
11815	Certificates of obligation issuance (Special)
11816	Certificates of obligation issuance (Special)
11817	Amends Ord. 8064, classification and compensation plan (Special)
11818	Amends Ord. 8064, classification and compensation plan (Special)
11819	Repeals Ord. 11463 (Special)
11820	Amends Ord. 11691, ambulance franchise (Special)
11821	Adds § 12.85.055; amends §§ 12.85.030, 12.85.060, 12.85.070, 12.85.090 and 12.85.100, vehicles and traffic (12.85)
11822	Designates reinvestment zone (Special)
11823	Amends Ord. 11617, right-of-way use (Special)
11824	Amends Ord. 11609, right-of-way use (Special)
11825	Amends Ord. 11621, right-of-way use (Special)
11826	Creates additional district for the sale of alcoholic beverages (Special)
11827	Creates additional district for the sale of alcoholic beverages (Special)
11828	Amends Ord. 10126, advisory committee (Special)
11829	Amends Ord. 8064, classification and compensation plan (Special)
11830	Amends Ord. 11627, right-of-way use (Special)
11831	Amends Ord. 11724, telecommunications special privilege (Special)
11832	Amends Ch. 18.12, mechanical code; repeals Ords. 11216, 11632 and 11753 (Repealed by 12691)
11833	Amends Ch.18.16, electrical code; repeals Ords. 11455, 11590, 11631, 11754 and 11792 (Repealed by 12684)
11834	Amends Ch. 18.24, gas code; repeals Ords. 8716 and 11218 (Repealed by 12690)

11835	Amends Ch. 18.20, plumbing code; repeals Ords. 8716, 11217, 11752 and 11791 (Repealed by 12682)
11836	Amends Ch. 18.08, building code; repeals Ords. 10553, 10890, 10985, 11215, 11325, 11476, 11477, 11515 and 11751 (Repealed by 12689)
11837	Adds Ch. 18.02, buildings and construction administrative code (18.02)
11838	Rezone (special)
11839	Rezone (special)
11840	Park use permission grant (Special)
11841	Park use permission grant (Special)
11842	Amends Ord. 11662, right-of-way use (Special)
11843	Repeals Ord. 10313 (Repealer)
11844	Grants special privilege to permit conduit system (Special)
11845	Creates additional district for the sale of alcoholic beverages (Special)
11846	Amends § 13.08.160, excavations (13.08)
11847	Amends Ord. 8064, classification and compensation plan (Special)
11848	Amends Ord. 11619, right-of-way use (Special)
11849	Repeals Ord. 8899 (Repealer)
11850	Grants special permit SP94-01 (Special)
11851	Park use permission grant (Special)
11852	Rezone (Special)
11853	Grants special permit to temporarily close streets (Special)
11854	Repeals Ord. 11697 (Repealer)
11855	Repeals Ord. 11670 (Repealer)
11856	Amends Ord. 11608, right-of-way use (Special)
11857	Creates additional district for the sale of alcoholic beverages (Special)
11858	Amends § 12.88.140, vehicles and traffic (12.88)
11859	Amends Ord. 11521, small business advisory board (Special)
11860	Amends Ord. 8064, classification and compensation plan (Special)
11861	Amends Ord. 8064, classification and compensation plan (Special)
11862	Amends Ord. 8064, classification and compensation plan (Special)
11863	Amends Ord. 8064, classification and compensation plan (Special)
11864	Amends Ord. 8064, classification and compensation plan (Special)
11865	Amends Ord. 8064, classification and compensation plan (Special)
11866	Amends Ord. 8064, classification and compensation plan (Special)
11867	Amends Ord. 8064, classification and compensation plan (Special)
11868	Amends Ord. 8064, classification and compensation plan (Special)
11869	Amends Ord. 8064, classification and compensation plan (Special)
11870	Amends Ord. 8064, classification and compensation plan (Special)
11871	Amends Ord. 8064, classification and compensation plan (Special)
11872	Amends Ord. 8064, classification and compensation plan (Special)
11873	Amends Ord. 8064, classification and compensation plan (Special)
11874	Amends Ord. 8064, classification and compensation plan (Special)
11875	Amends Ord. 8064, classification and compensation plan (Special)
11876	Amends Ord. 8064, classification and compensation plan (Special)
11877	Amends Ord. 8064, classification and compensation plan (Special)
11878	Amends Ord. 8064, classification and compensation plan (Special)
11879	Amends Ord. 8064, classification and compensation plan (Special)
11880	Amends Ord. 8064, classification and compensation plan (Special)
11881	Amends Ord. 8064, classification and compensation plan (Special)
11882	Amends Ord. 8064, classification and compensation plan (Special)
11883	Amends Ord. 8064, classification and compensation plan (Special)
11884	Vacates utility easement (special)
11885	Rezone (Special)

Ordinance Number	
11886	Creates additional district for the sale of alcoholic beverages (Special)
11887	Authorizes quitclaim deed (Special)
11888	Special privilege granting encroachment onto public right-of-way (Special)
11889	Street vacation (Special)
11890	Rezone (Special)
11891	Rezone (Special)
11892	Rezone (Special)
11893	Rezone (Special)
11894	Rezone (Special)
11895	Rezone (Special)
11896	Amends Ord. 8064, classification and compensation plan (Special)
11897	Amends Ord. 8064, classification and compensation plan (Special)
11898	Amends Ord. 8064, classification and compensation plan (Special)
11899	Amends Ord. 8064, classification and compensation plan (Special)
11900	Amends Ord. 8064, classification and compensation plan (Special)
11901	Amends Ord. 8064, classification and compensation plan (Special)
11902	Amends Ord. 11598, bridge commission (Special)
11903	Amends Ord. 6163, arts resources board (Repealed by 14880)
11904	Repeals Ch. 18.04 (Repealer)
11905	Repeals Ch. 18.28 (Repealer)
11906	Establishes lease (Special)
11907	Creates additional district for the sale of alcoholic beverages (Special)
11908	Creates additional district for the sale of alcoholic beverages (Special)
11909	Creates additional district for the sale of alcoholic beverages (Special)
11910	Utility easement vacation (Special)
11911	Amends Ord. 11629, right-of-way use (Special)
11912	Amends Ord. 11613, right-of-way use (Special)
11913	Amends Ord. 11607, right-of-way use (Special)
11914	Repeals Ord. 11673 (Repealer)
11915	Repeals Ord. 11671 (Repealer)
11916	Grants special privilege to temporarily close street (Special)
11917	Special privilege granting encroachment onto public right-of-way (Special)
11918	Grants special permit SP92-22 (Special)
11919	Grants special permit SP94-04 (Special)
11920	Amends Ord. 10958 land exchange (Special)
11921	Amends Ord. 11125, authorizing encroachment (Special)
11922	Creates additional district for the sale of alcoholic beverages (Special)
11923	Amends Ord. 10968, creating liquor district (Special)
11924	Nominates enterprise zone (Special)
11925	Amends Ord. 8064, classification and compensation plan (Special)
11926	Amends Ord. 8064, classification and compensation plan (Special)
11927	Amends Ord. 8064, classification and compensation plan (Special)
11928	Amends Ord. 8064, classification and compensation plan (Special)

Ordinance Number	
11929	Amends Ord. 8064, classification and compensation plan (Special)
11930	Park use permission grant (Special)
11931	Repeals Ord. 11565 (Repealer)
11932	Grants special permit SP94-05 (Special)
11933	Grants special permit SP94-06 (Special)
11934	Plaza use permission grant (Special)
11935	Park use permission grant (Special)
11936	Park use permission grant (Special)
11937	Vacates utility easement (Special)
11938	Amends §§ 20.34.020, 20.36.020, 20.38.020, 20.40.020, 20.46.020, 20.48.020, 20.50.020 and 20.60.040, zoning (Repealed by 16653)
11939	Rezone (Special)
11940	Rezone (Special)
11941	Rezone (Special)
11942	Rezone (Special)
11943	Amends Ord. 8064, classification and compensation plan (Special)
11944	Revises certain fee schedule (Special)
11945	Grants temporary street closure privilege (Special)
11946	Park use permission grant (Special)
11947	Park use permission grant (Special)
11948	Street vacation (Special)
11949	Creates additional district for the sale of alcoholic beverages (Repealed by 13653)
11950	Park use permission grant (Special)
11951	Amends § 11 of Ord. 11662, public right-of-way use (Special)
11952	Special privilege granting encroachment onto public right-of-way (Special)
11953	Special privilege granting encroachment onto public right-of-way (Special)
11954	Amends Ord. 11843, public right-of-way use (Special)
11955	Amends § 11 of Ord. 11674, public right-of-way use (Special)
11956	Authorizes certain land sale (Special)
11957	Amends Ord. 10903, lease agreement (Special)
11958	Special privilege granting encroachment onto public right-of-way (Special)
11959	Special privilege granting encroachment onto public right-of-way (Special)
11960	Special privilege granting encroachment onto public right-of-way (Special)
11961	Amends Ord. 8065, civil service rules and regulations (Special)
11962	Amends Ord. 8064, classification and compensation plan (Special)
11963	Amends Ord. 8064, classification and compensation plan (Special)
11964	Park use permission grant (Special)
11965	Amends The Plan for El Paso (Special)
11966	Bond issuance (Special)
11967	Authorizes quitclaim deed execution (Special)
11968	Special privilege granting encroachment onto public right-of-way (Special)

Ordinance Number	
11969	Special privilege granting encroachment onto public right-of-way (Special)
11970	Repeals Ord. 11616 (Repealer)
11971	Repeals Ord. 11615 (Repealer)
11972	Repeals Ord. 11622 (Repealer)
11973	Repeals Ord. 11623 (Repealer)
11974	Repeals Ord. 11624 (Repealer)
11975	Repeals Ord. 11626 (Repealer)
11976	Repeals Ord. 11629 (Repealer)
11977	Repeals Ord. 11663 (Repealer)
11978	Repeals Ord. 11614 (Repealer)
11979	Repeals Ord. 11613 (Repealer)
11980	Repeals Ord. 11610 (Repealer)
11981	Repeals Ord. 11607 (Repealer)
11092	Repeals Ord. 11605 (Repealer)
11983	Park use permission grant (Special)
11984	Amends Ord. 8065, civil service rules and regulations (Special)
11985	Grants special permit SP94-07 (Special)
11986	Rezone (Special)
11987	Rezone (Special)
11988	Rezone (Special)
11989	Special privilege granting encroachment onto public right-of-way (Special)
11990	Special encroachment privilege (Repealed by 12073)
11991	Special privilege granting encroachment onto public right-of-way (Special)
11992	Grants temporary street closure, privilege (Special)
11993	Creates additional district for the sale of alcoholic beverages (Special)
11994	Authorizes sale of certain land (Special)
11995	Park use permission grant (Special)
11996	Amends § 12.88.140, vehicles and traffic schedules (12.88)
11997	Amends § 9.04.400, solid waste management (9.04)
11998	Amends § 13.24.200, city park and recreation areas (Repealed by 14020)
11999	Creates additional district for the sale of alcoholic beverages (Special)
12000	Amends § 11 of Ord. 11617, public right-of-way use (Special)
12001	Special encroachment privilege (Repealed by 12072)
12002	Special privilege granting encroachment onto public right-of-way (Special)
12003	Special privilege granting encroachment onto public right-of-way (Special)
12004	Special encroachment privilege (Repealed by 12071)
12005	Special privilege granting encroachment onto public right-of-way (Special)
12006	Grants use of public right-of-way (Special)
12007	Grants use of public right-of-way (Special)
12008	Grants use of public right-of-way (Special)
12009	Repeals Ords. 9974, 10937 and 11419 (Repealer)
12010	Repeals Ords. 9782, 11001 and 11356 (Repealer)
12011	Repeals Ords. 9783, 10937 and 11419 (Repealer)
12012	Park use permission grant (Special)
12013	Amends § 12.88.150, vehicles and traffic schedules (12.88)

Ordinance Number	
12014	Amends § 12.88.150, vehicles and traffic schedules (12.88)
12015	Amends § 12.88.150, vehicles and traffic schedules (12.88)
12016	Alley vacation (Special)
12017	Amends Ord. 8064, classification and compensation plan (Special)
12018	Amends Ord. 8064, classification and compensation plan (Special)
12019	Amends Ord. 8064, classification and compensation plan (Special)
12020	Amends Ord. 8064, classification and compensation plan (Special)
12021	Amends Ord. 8064, classification and compensation plan (Special)
12022	Amends Ord. 8064, classification and compensation plan (Special)
12023	Amends Ord. 11638, liquor district (Special)
12024	Amends Ord. 11639, liquor district (Special)
12025	Park use permission grant (Special)
12026	Park use permission grant (Special)
12027	Adds §§ 18.02.103.2.7 and 18.02.109.1.8, building and construction administrative code (18.02)
12028	Grants special privilege lease (Special)
12029	Rezone (Special)
12030	Rezone (Special)
12031	Rezone (Special)
12032	Rezone (Special)
12033	Grants special permit SP93-21 (Special)
12034	Grants special permit SP94-08 (Special)
12035	Grants special permit SP94-10 (Special)
12036	Grants special permit SP94-09 (Special)
12037	Grants special permit SP94-03 (Special)
12038	Park use permission grant (Special)
12039	Park use permission grant (Special)
12040	Amends Ord. 8064, classification and compensation plan (Special)
12041	Amends Ord. 8064, classification and compensation plan (Special)
12042	Amends Ord. 8065, civil service rules and regulations (Special)
12043	Park use permission grant (Special)
12044	Park use permission grant (Special)
12045	Amends Ord. 11594 liquor district (Special)
12046	Creates additional district for the sale of alcoholic beverages (Special)
12047	Creates additional district for the sale of alcoholic beverages (Special)
12048	Creates additional district for the sale of alcoholic beverages (Special)
12049	Amends Ord. 11761, rezone (Special)
12050	Special privilege granting encroachment onto public right-of-way (Special)
12051	Amends § 11 of Ord. 11620, public right-of-way use (Special)
12052	Amends Ord. 11305, enterprise zone (Special)
12053	Amends § 12.88.150, vehicles and traffic schedules (12.88)
12054	Amends § 12.88.150, vehicles and traffic schedules (12.88)

Ordinance Number	
12055	Grants certain pipeline construction special privilege (Special)
12056	Special privilege granting encroachment onto public right-of-way (Special)
12057	Amends § 11 of Ord. 11662, public right-of-way use (Special)
12058	Park use permission grant (Special)
12059	Rezone (Special)
12060	Rezone (Special)
12061	Rezone (Special)
12062	Bond issuance (Special)
12063	Amends Ord. 8064, classification and compensation plan (Special)
12064	Park use permission grant (Special)
12065	Park use permission grant (Special)
12066	Grants temporary street closure privilege (Special)
12067	Grants ambulance transfer franchise (Repealed by 12211)
12068	Park use permission grant (Special)
12069	Park use permission grant (Special)
12070	Authorizes signing of interlocal license agreement (Special)
12071	Repeals Ord. 12004 (Repealer)
12072	Repeals Ord. 12001 (Repealer)
12073	Repeals Ord. 11990 (Repealer)
12074	Authorizes quitclaim deed execution (Special)
12075	Amends Ord. 8064, classification and compensation plan (Special)
12076	Authorizes lease of senior citizen center (Special)
12077	Park use permission grant (Special)
12078	Park use permission grant (Special)
12079	Park use permission grant (Special)
12080	Grants special permit SP94-12 (Special)
12081	Grants special permit SP94-13 (Special)
12082	Grants special permit SP94-14 (Special)
12083	Grants special permit SP94-15 (Special)
12084	Amends § 2.64.020, city employees' pension fund (2.64)
12085	Amends § 2.64.070, city employee's pension fund (2.64)
12086	Amends Ord. 11439 lease agreement authorization (Special)
12087	Park use permission grant (Special)
12088	Grants special permit SP94-18 (Special)
12089	Rezone (Special)
12090	Rezone (Special)
12091	Amends Ord. 8064, classification and compensation plan (Special)
12092	Amends Ord. 8064, classification and compensation plan (Special)
12093	Amends Ord. 8064, classification and compensation plan (Special)
12094	Amends Ord. 8064, classification and compensation plan (Special)
12095	Park use permission grant (Special)
12096	Grants temporary street closure privilege (Special)
12097	1994 tax levy (Special)
12098	Rezone (Special)
12099	Amends Ord. 8064, classification and compensation plan (Special)
12100	Amends Ord. 8064, classification and compensation plan (Special)

Ordinance Number	
12101	Amends Ord. 8065, civil service rules and regulations (Special)
12102	Creates additional district for the sale of alcoholic beverages (Special)
12103	Grants temporary street closure privilege (Special)
12104	Amends § 19.40.010, subdivisions (19.40)
12105	Amends §§ 19.08.040—19.08.110, subdivisions (19.08)
12106	Amends § 15.08.120, street rentals (15.08)
12107	Amends §§ 6.12.050, 6.12.090, 6.16.090, 6.16.120, 6.16.140, 6.16.150, 6.20.050, 6.28.040, 6.32.030, 6.32.130, 6.34.030, 6.34.120, 6.34.150 and 6.36.040, vehicles for hire (6.12, 6.16, 6.20, 6.28, 6.32, 6.34, 6.36)
12108	Amends § 12.78.010, international bridges (12.78)
12109	Amends § 18.02.109, building and construction administrative code (18.02)
12110	Amends § 13.24.200, city park and recreation areas (Repealed by 14020)
12111	Amends §§ 13.04.015 and 13.12.050, streets, sidewalks and public places (13.04, 13.12)
12112	Amends § 2.16.060, zoning board of adjustment (Repealed by 16888)
12113	Amends §§ 20.66.100 and 20.66.110, zoning (Repealed by 16653)
12114	Amends §§ 20.04.551, 20.04.551.1, 20.04.551.2, 20.04.551.3 and 20.04.552, zoning (Repealed by 16653)

Ordinance Number	
12115	Adds § 5.24.050, charitable solicitations (5.24)
12116	Amends §§ 13.28.020 and 13.28.070, sound amplifying equipment (13.28)
12117	Amends § 13.28.040, sound amplifying equipment (13.28)
12118	Amends §§ 17.08.120, 17.08.220 and 17.12.040, housing (17.08, 17.12)
12119	Amends §§ 5.28.020, 5.36.060, 5.72.030, 5.72.050, 5.84.050, 5.96.020, 5.96.040, 5.100.040 and 5.100.070, business taxes licenses and regulations (5.28, 5.36, 5.72, 5.84, 5.100)
12120	Amends § 9.12.070, food and food handling establishments (9.12)
12121	Adds § 7.08.160, animals (7.08)
12122	Amends § 7.12.030, animals (7.16)
12123	Amends § 7.12.020, dogs and cats (7.12)
12124	Amends § 7.08.110, animals (7.08)
12125	Amends § 9.44.150, midwives (9.44)
12126	Amends fee system for neighborhood health centers; repeals Ord. 10714 (Special)
12127	Amends § 9.74.030, incinerators (9.74)
12128	Amends § 9.48.030, swimming pools (9.48)
12129	Rezone (Special)
12130	Repeals Ord. 11768 (Repealer)
12131	Special privilege granting encroachment onto public right-of-way (Special)
12132	Amends Ord. 8064, classification and compensation plan (Special)
12133	Creates additional district for the sale of alcoholic beverages (Special)
12134	Creates additional district for the sale of alcoholic beverages (Special)
12135	Amends Ord. 11845, new liquor district (Special)
12136	Grants special permit SP92-19 (Special)
12137	Grants special permit SP94-19 (Special)
12138	Rezone (Special)
12139	Rezone (Special)
12140	Special privilege granting encroachment onto public right-of-way (Special)
12141	Amends Ord. 10739, library fine fee schedule (Special)
12142	Amends Ord. 8064, classification and compensation plan (Special)
12143	Amends Ord. 8065, civil service rules and regulations (Special)
12144	Grants temporary street closure privilege (Special)
12145	Rezone (Special)
12146	Easement vacation (Special)
12147	Property conveyance (Special)
12148	Quitclaim deed authorization (Special)
12149	Amends Ord. 8064, classification and compensation plan (Special)
12150	Amends Ord. 8064, classification and compensation plan (Special)
12151	Amends Ord. 8064, classification and compensation plan (Special)
12152	Amends Ord. 8064, classification and compensation plan (Special)
12153	Rezone (Special)
12154	Rezone (Special)
12155	Rezone (Special)

Ordinance Number	
12156	Grants special permit SP94-22 (Special)
12157	Amends § 14.12.080(B)(8), aircraft use regulations (14.12)
12158	Bond issuance (Special)
12159	Amends Ord. 9699, rezone (Repealed by 16756)
12160	Rezone (Special)
12161	Easement authorization (Special)
12162	Adopts Lower Valley Planning Area policies (Special)
12163	Rezone (Special)
12164	Amends § 9.08.020(D)(2), junked vehicles (9.08)
12165	Amends § 5.12.120(A), amusement devices; repeals §§ 5.12.150, 5.12.160, 5.12.170, 5.12.180 and 5.12.190 (5.12)
12166	Special privilege granting encroachment onto public right-of-way (Special)
12167	Special privilege granting encroachment onto public right-of-way (Special)
12168	Special privilege granting encroachment onto public right-of-way (Special)
12169	Special privilege granting encroachment onto public right-of-way (Special)
12170	Amends §§ 12.85.080 and 12.85.090, parking violations bureau (12.85)
12171	Amends § 13.28.020, sound amplifying devices (13.28)
12172	Amends § 15.08.120(K), street rentals (15.08)
12173	Amends Ord. 8064, classification and compensation plan (Special)
12174	Amends Ords. 10867 and 11517, convention and tourism advisory board (Not codified)
12175	Creates additional district for the sale of alcoholic beverages (Special)
12176	Creates additional district for the sale of alcoholic beverages (Special)
12177	Grants special permit SP94-24 (Special)
12178	Rezone (Special)
12179	Rezone (Special)
12180	Rezone (Special)
12181	Rezone (Special)
12182	Street vacation (Special)
12183	Amends reinvestment zone plan (Special)
12184	Authorizes tax resale deed (Special)
12185	Special privilege granting encroachment onto public right-of-way (Special)
12186	Special privilege granting encroachment onto public right-of-way (Special)
12187	Special privilege granting encroachment onto public right-of-way (Special)
12188	Special privilege granting encroachment onto public right-of-way (Special)
12189	Special privilege granting encroachment onto public right-of-way (Special)
12190	Special privilege granting encroachment onto public right-of-way (Special)
12191	Special privilege granting encroachment onto public right-of-way (Special)
12192	Special privilege granting encroachment onto public right-of-way (Repealed by 12701)

Ordinance Number	
12193	Special privilege granting encroachment onto public right-of-way (Repealed by 13087)
12194	Special privilege granting encroachment onto public right-of-way (Repealed by 12702)
12195	Special privilege granting encroachment onto public right-of-way (Special)
12196	Special privilege granting encroachment onto public right-of-way (Repealed by 12703)
12197	Special privilege granting encroachment onto public right-of-way (Special)
12198	Special privilege granting encroachment onto public right-of-way (Special)
12199	Special privilege granting encroachment onto public right-of-way (Repealed by 12704)
12200	Special privilege granting encroachment onto public right-of-way (Special)
12201	Special privilege granting encroachment onto public right-of-way (Special)
12202	Special privilege granting encroachment onto public right-of-way (Special)
12203	Special privilege granting encroachment onto public right-of-way (Repealed by 12705)
12204	Repeals Ord. 10646 (Repealer)
12205	Grants special permit SP94-23 (Special)
12206	Grants special permit SP94-25 (Special)
12207	Places historic designation (Special)
12208	Rezone (Special)
12209	Rezone (Special)
12210	Rezone (Special)
12211	Repeals Ord. 12067 (Repealer)
12212	Grants franchise (Special)
12213	Grants special privilege parking (Special)
12214	Easement vacation (Special)
12215	Creates additional district for the sale of alcoholic beverages (Special)
12216	Special privilege granting encroachment onto public right-of-way (Special)
12217	Special privilege granting encroachment onto public right-of-way (Repealed by 12258)
12218	Rezone (Special)
12219	Alley vacation (Special)
12220	Park use permission grant (Special)
12221	Amends Ord. 10873, trade zone fees (Special)
12222	Authorizes easement acceptance (Special)
12223	Amends Ord. 7216, liquor district (Special)

Ordinance Number	
12224	Creates additional district for the sale of alcoholic beverages (Special)
12225	Amends Ord. 8064, classification and compensation plan (Special)
12226	Amends Ord. 8064, classification and compensation plan (Special)
12227	Authorizes tax resale deed (Special)
12228	Grants special permit SP94-26 (Special)
12229	Grants special permit SP94-27 (Special)
12230	Amends § 9.77.020, health and safety (9.77)
12231	Establishes subdivision committee (Special)
12232	Amends Ord. 10474, "Safe 2000" committee (Special)
12233	Amends § 20.08.230(C), zoning (Repealed by 16653)
12234	Amends § 20.08.220, zoning (Repealed by 16653)
12235	Amends Ord. 10602, liquor district (Special)
12236	Rezone (Special)
12237	Amends Ord. 8064, classification and compensation plan (Special)
12238	Special privilege granting encroachment onto public right-of-way (Special)
12239	Rezone (Special)
12240	Rezone (Special)
12241	Adds §§ 15.08.012, 15.08.013, 15.08.014 and 15.08.125, street rentals (15.08)
12242	Amends Ord. 12412, liquor district (Special)
12243	Authorizes easement acceptance (Special)
12244	Adds § 12.24.050, turning movements (12.24)
12245	Amends § 12.20.060, traffic control devices (12.20)
12246	Easement vacation (Special)
12247	Amends §§ 13.12.020, 13.12.040, 13.12.050, 13.12.080 and 13.12.095, driveways (13.12)
12248	Amends §§ 13.04.010, 13.04.015, 13.04.040, 13.04.045, 13.04.050 and 13.04.070, street and sidewalk construction and maintenance (13.04)
12249	Corrects language in Ord. 5779 (Special)
12250	Amends Ord. 8064, classification and compensation plan (Special)
12251	Amends Ord. 8064, classification and compensation plan (Special)
12252	Creates additional district for the sale of alcoholic beverages (Special)
12253	Creates additional district for the sale of alcoholic beverages (Special)
12254	Creates additional district for the sale of alcoholic beverages (Special)
12255	Creates additional district for the sale of alcoholic beverages (Special)
12256	Creates additional district for the sale of alcoholic beverages (Repealed by 12410)
12257	Amends § 2.64.050, city employees' pension fund (2.64)
12258	Repeals Ord. 12217 (Repealer)
12259	Amends § 12.88.010, vehicles and traffic (12.88)
12260	Authorizes quitclaim deed signing (Special)
12261	Rezone (Special)
12262	Rezone (Special)
12263	Repeals Ord. 9573 (Repealer)

Ordinance Number	
12264	Special privilege granting encroachment onto public right-of-way (Special)
12265	Authorizes tax resale deed (Special)
12266	Amends Ord. 8064, classification and compensation plan (Special)
12267	Amends § 12.88.150(F), vehicles and traffic (12.88)
12268	Amends Ord. 8064, classification and compensation plan (Special)
12269	Amends Ord. 8064, classification and compensation plan (Special)
12270	Amends Ord. 8064, classification and compensation plan (Special)
12271	Amends Ord. 8064, classification and compensation plan (Special)
12272	Amends Ord. 8064, classification and compensation plan (Special)
12273	Amends Ord. 8064, classification and compensation plan (Special)
12274	Amends Ord. 8064, classification and compensation plan (Special)
12275	Amends Ord. 8064, classification and compensation plan (Special)
12276	Amends Ord. 8064, classification and compensation plan (Special)
12277	Amends Ord. 8064, classification and compensation plan (Special)
12278	Amends Ord. 8064, classification and compensation plan (Special)
12279	Amends Ord. 8064, classification and compensation plan (Special)
12280	Amends Ord. 8064, classification and compensation plan (Special)
12281	Provides for 1995 General Election (Special)
12282	Repeals Ord. 5773 (Repealer)
12283	Repeals §§ 9.04.340(E), 9.04.350(C) and 9.04.360(D), solid waste management (9.04)
12284	Creates additional district for the sale of alcoholic beverages (Special)
12285	Amends Ord. 8629 (Special)
12286	Rezone (Special)
12287	Alley vacation (Special)
12288	Amends § 12.44.100, stopping, standing and parking (12.44)
12289	Authorizes land sale (Special)
12290	Rezone (Special)
12291	Rezone (Special)
12292	Rezone (Special)
12293	Amends Ord. 8064, classification and compensation plan (Special)
12294	Amends Ord. 8064, classification and compensation plan (Special)
12295	Amends § 12.88.010, vehicles and traffic (12.88)
12296	Special privilege granting encroachment onto public right-of-way (Special)
12297	Special privilege granting encroachment onto public right-of-way (Repealed by 12706)
12298	Amends Ord. 8064, classification and compensation plan (Special)
12299	Amends § 7.12.020(C), dogs and cats (7.12)
12300	Authorized land sale (Special)
12301	Amends Ord. 11800, soccer field lease (Special)
12302	Amends Ord. 11906, VFW premises lease (Special)
12303	Repeals Ord. 4396 (Repealer)
12304	Repeals Ord. 4621 (Repealer)
12305	Repeals Ord. 4666 (Repealer)
12306	Special privilege granting encroachment onto public right-of-way (Repealed by 12339)
12307	Amends Ord. 11638 (Special)
12308	Amends Ord. 8491 (Special)
12309	Amends Ord. 11639 (Special)

Ordinance Number	
12310	Amends Ord. 12252 (Special)
12311	Amends Ord. 12254 (Special)
12312	Corrects Ord. 12060, rezone (Special)
12313	Rezone (Special)
12314	Amends § 12.88.030, vehicles and traffic (12.88)
12315	Amends § 15.08.120(G), street rentals (15.08)
12316	Authorizes tax resale deed execution (Special)
12317	Amends Ord. 8064, classification and compensation plan (Special)
12318	Amends Ord. 8064, classification and compensation plan (Special)
12319	Amends Ord. 8064, classification and compensation plan (Special)
12320	Amends Ord. 8064, classification and compensation plan (Special)
12321	Alley vacation (Special)
12322	Amends §§ 12.44.230(B) and (E), stopping, standing and parking (12.44)
12323	Alley vacation (Special)
12324	Street vacation (Special)
12325	Special privilege granting encroachment onto public right-of-way (Special)
12326	Special privilege granting encroachment onto public right-of-way (Special)
12327	Authorizes lease (Special)
12328	Authorizes lease (Special)
12329	Amends § 12.08.220, vehicles and traffic (12.08)
12330	Amends § 12.80.150, miscellaneous traffic regulations (12.80)
12331	Grants special permit SP95-01 (Special)
12332	Grants special permit SP95-02 (Special)
12333	Rezone (Special)
12334	Rezone (Special)
12335	Amends Ord. 8064, classification and compensation plan (Special)
12336	Amends Ord. 10323 (Special)
12337	Amends Ord. 12281 (Special)
12338	Designates Reinvestment Zone "K" (Special)
12339	Repeals Ord. 12306 (Repealer)
12340	Special privilege granting encroachment onto public right-of-way (Special)
12341	(Repealed)
12342	(Repealed)
12343	(Repealed)
12344	(Repealed)
12345	Authorizes land sale (Repealed by 12411)
12346	Amends § 12.88.030, vehicles and traffic (12.88)
12347	Amends § 12.88.060, vehicles and traffic (12.88)
12348	Park use permission grant (Special)
12349	Park use permission grant (Special)
12350	Park use permission grant (Special)
12351	Special privilege granting encroachment onto public right-of-way (Special)
12352	Rezone (Special)
12353	Rezone (Special)
12354	Rezone (Special)
12355	Rezone (Special)
12356	Amends § 12.88.060, vehicles and traffic (12.88)
12357	Amends Ord. 5979 (Special)
12358	Grants telecommunications franchise (Special)
12359	Rezone (Special)

Ordinance Number	
12360	Special privilege granting temporary street closure for street festival (Special)
12361	Special privilege granting encroachment onto public right-of-way (Special)
12362	Special privilege granting temporary streets and alleys closure for street shopping festival (Special)
12363	Amends Ord. 8064, classification and compensation plan (Special)
12364	Amends Ord. 8064, classification and compensation plan (Special)
12365	Amends Ord. 8064, classification and compensation plan (Special)
12366	Amends Ord. 8064, classification and compensation plan (Special)
12367	Amends Ord. 8064, classification and compensation plan (Special)
12368	Amends Ord. 8064, classification and compensation plan (Special)
12369	Alley vacation (Special)
12370	Amends § 13.32.070, parades and temporary events (13.32)
12371	Amends Ord. 11439, golf driving range facility lease (Special)
12372	Rezone (Special)
12373	Rezone (Special)
12374	Grants special permit SP-95-03 (Special)
12375	Rezone (Special)
12376	Grants special permit SP-94-28 (Special)
12377	Grants special permit SP-95-05 (Special)
12378	Amends Ord. 8064, classification and compensation plan (Special)
12379	Amends Ord. 8064, classification and compensation plan (Special)
12380	Amends Ord. 8064, classification and compensation plan (Special)
12381	Amends Ord. 8064, classification and compensation plan (Special)
12382	Amends Ord. 8064, classification and compensation plan (Special)
12383	Authorizes tax resale deeds (Special)
12384	Amends Ord. 7693, liquor district 603 (Special)
12385	Creates liquor district 923 (Special)
12386	Creates liquor district 924 (Special)
12387	Amends Ord. 11843, repealer (Special)
12388	Amends §§ 13.28.020, 13.28.030, 13.28.050 and 13.28.070, sound amplifying devices (13.28)
12389	Adds subsection A(58)[(54)] to § 12.88.060, vehicles and traffic (12.88)
12390	Amends § 12.44.100, stopping, standing and parking (12.44)
12391	Adds subsections E and F to § 12.44.010, stopping, standing and parking (12.44)
12392	Permits use of a portion of Yucca Park (Special)
12393	Special privilege granting off-street parking (Special)
12394	Rezone (Special)
12395	Rezone (Special)
12396	Rezone (Special)
12397	Rezone (Special)
12398	Rezone (Special)
12399	Adds Ch. 20.65, landscape (Repealed by 16653)
12400	Amends Ord. 8064, classification and compensation plan (Special)
12401	Special privilege granting encroachment onto public right-of-way (Special)

Ordinance Number	
12402	Special privilege granting to permit natural gas pipeline in right-of-way (Special)
12403	Amends § [2.44.030], municipal court judges (Repealed by 16274)
12404	Special privilege granting temporary closure of street for sidewalk sale (Special)
12405	Special privilege granting temporary closure of street for festival of homes (Special)
12406	Permits use of a portion of Grandview Park (Special)
12407	Authorizes mayor to accept easement (Special)
12408	Adds subsection (88) to § 12.88.180; amends subsection (19) of § 12.88.180, vehicles and traffic (12.88)
12409	Repeals Ord. 5445 (Repealer)
12410	Amends Ord. 12256, liquor district 921 (Special)
12411	Repeals Ord. 12345 (Repealer)
12412	Permits use of a portion of Boys Club Park (Special)
12413	Permits use of Shawver Park (Special)
12414	Creates liquor district 925 (Repealed by 12502)
12415	Creates liquor district 926 (Special)
12416	Amends Ord. 8064, classification and compensation plan (Special)
12417	Amends Ord. 8064, classification and compensation plan (Special)
12418	Amends Ord. 8064, classification and compensation plan (Special)
12419	Amends Ord. 8064, classification and compensation plan (Special)
12420	Amends Ord. 8064, classification and compensation plan (Special)
12421	Amends Ord. 8064, classification and compensation plan (Special)
12422	Amends Ord. 8064, classification and compensation plan (Special)
12423	Amends Ord. 8064, classification and compensation plan (Special)
12424	Amends Ord. 8064, classification and compensation plan (Special)
12425	Amends Ord. 8064, classification and compensation plan (Special)
12426	Amends Ord. 8064, classification and compensation plan (Special)
12427	Amends § 2.64.240(E), city employees' pension fund (2.64)
12428	Amends § 2.64.240(E), city employees' pension fund (2.64)
12429	Amends Ord. 12231, subdivision committee (Special)
12430	Places historic designation on Alexander Addition (Special)
12431	Rezone (Special)
12432	Rezone (Special)
12433	Grants special permit SP95-11 (Special)
12434	Permits use of a portion of Eastwood (Album) Park (Special)
12435	Special privilege granting temporary closure of street for preview of homes (Special)
12436	Amends § 12.88.160(A) [12.88.060(A)], vehicles and traffic (12.88)
12437	Amends Ord. 8064, classification and compensation plan (Special)
12438	Rezone (Special)
12439	Rezone (Special)
12440	Rezone (Special)
12441	Rezone (Special)
12442	Rezone (Special)
12443	Rezone (Special)
12444	Grants special permit SP95-04 (Special)

Ordinance Number	
12445	Amends Ord. 8064, classification and compensation plan (Special)
12446	Amends Ord. 8064, classification and compensation plan (Special)
12447	Permits use of a portion of Hidden Valley (Cowboy) Park (Special)
12448	Permits use of a portion of Marcos B. Armijo Park (Special)
12449	Rezone (Special)
12450	Rezone (Special)
12451	Rezone (Special)
12452	Rezone (Special)
12453	Rezone (Special)
12454	Rezone (Special)
12455	Easement vacation (Special)
12456	Easement vacation (Special)
12457	Easement vacation (Special)
12458	Authorizes sale of land (Special)
12459	Authorizes sale of land (Special)
12460	Authorizes sale of land (Special)
12461	Amends Ord. 12383, tax resale deeds (Special)
12462	Amends Ord. 11993, liquor district 904 (Special)
12463	Adds § 18.02.103.1.1.6.5, buildings and construction (18.02)
12464	Amends § 12.44.180(B), stopping, standing and parking (12.44)
12465	Amends Ord. 8064, classification and compensation plan (Special)
12466	Permits use of a portion of Yucca Park (Special)
12467	Authorizes mayor to accept easement (Special)
12468	Amends Ord. 11098, lease agreement (Special)
12469	Amends Ord. 12405, temporary street closure (Special)
12470	Rezone (Special)
12471	Permits use of a portion of Mary Webb Park (Special)
12472	Street vacation (Special)
12473	Amends Ord. 12231, subdivision committee (Special)
12474	Creates district 928 for sale of alcoholic beverages (Repealed by 12663)
12475	Adds §§ 19.04.690, 19.08.095, 19.08.105, 19.12.120 and 19.28.180—19.28.200; amends § 19.25.030(A)(2), (B), subdivisions (19.04, 19.08, 19.12, 19.25, 19.28)
12476	Amends Ord. 10873, fees for foreign trade zone 68 (Special)
12477	Amends Ord. 12046, liquor district 906 (Special)
12478	Permits use of a portion of Eastwood (Album) Park (Special)
12479	Permits use of a portion of Shawver Park (Special)
12480	Rezone (Special)
12481	Rezone (Special)
12482	Grants special permit SP-95-08 (Special)
12483	Grants special permit SP-95-08 (Special)
12484	Authorizes mayor to execute tax resale deed (Special)
12485	Adds subsections (89)—(92) to § 12.88.180, vehicles and traffic (12.88)
12486	Adds subsection B(12) to § 2.16.050, zoning board of adjustment (2.16)
12487	Permits use of a portion of Hidden Valley (Cowboy) Park (Special)
12488	Designates reinvestment zone "L" (Special)
12489	Rezone (Special)
12490	Park use permission grant (Special)

Ordinance Number	
12491	Adds §§ 20.10.040(X), 20.12.040(T)(1)(e), 20.14.040(U)(1)(e), 20.16.040(E)(1)(e), 20.18.060(P)(1)(e), 20.20.040(R)(1)(e), 20.22.040(Q)(1)(e), 20.24.040(P)(1)(e), 20.26.040(N)(1)(c), 20.28.040(P)(1)(e), 20.30.040(P)(1)(e), 20.32.040(5)(1)(e), 20.36.040(M), 20.38.040(N), 20.40.040(P), 20.42.040(O), 20.44.040(I), 20.45.030(J)(1)(e), 20.45.041(E), 20.46.020(16)(a)(v), 20.46.040(N), 20.48.020(N)(1)(e), 20.48.040(K), 20.50.020(N)(1)(e), 20.50.040(J), 20.54.060(I)(1)(e), 20.56.060(I)(1)(e), 20.60.040(23)(1)(e), 20.60.050(H) and 20.61.060(L)(1)(e); amends §§ 20.40.020(56)(i), 20.42.020(A)(79)(i), 20.44.020(43)(i), 20.54.060 and 20.56.060, zoning; repeals §§ 20.34.050(J)(6), 20.40.020(56)(b), 20.42.020(79)(b), 20.52.060(G)(6), 20.44.020(43)(6) and 20.58.050(E)(6) (Repealed by 16653)
12492	Amends Ord. 8064, classification and compensation plan (Special)
12493	Amends Ord. 8064, classification and compensation plan (Special)
12494	Amends Ord. 8064, classification and compensation plan (Special)
12495	Amends Ord. 8064, classification and compensation plan (Special)
12496	Authorizes mayor to execute quitclaim deed (Special)
12497	Authorizes mayor to execute quitclaim deed (Special)
12498	Grants right of entry (Special)
12499	Park use permission grant (Special)
12500	Amends § 2.44.090, courts (2.44)
12501	Amends § 13.32.040(C), parades and temporary events (13.32)
12502	Repeals Ord. 12414 (Repealer)
12503	Creates additional district for the sale of alcoholic beverages (Special)
12504	Grants special permit SP-95-17; repeals SP-94-22 (Special)
12505	Park use permission grant (Special)
12506	Amends § 20.66.300, zoning (Repealed by 16304)
12507	Rezone (Special)
12508	Rezone (Special)
12509	Grants special permit SP-95-07 (Special)
12510	Grants special permit SP-95-09 (Special)
12511	Grants special permit SP-95-13 (Special)
12512	Grants special permit SP-95-12 (Special)
12513	Rezone (Special)
12514	Amends Ord. 12070 interlocal license agreement (Special)
12515	Amend § 5.24.140, charitable solicitations (5.24)
12516	Amends § 15.08.120, street rentals (15.08)
12517	Adds § 13.20.100, miscellaneous street and sidewalk use regulations (13.20)
12518	Creates additional district for the sale of alcoholic beverages (Special)

Ordinance Number	
12519	Amends Ord. 9727 which created an additional liquor district (Special)
12520	Amends Ord. 8855 which created an additional liquor district (Special)
12521	Amends Ord. 8064, classification and compensation plan (Special)
12522	Amends Ord. 8064, classification and compensation plan (Special)
12523	Park use permission grant (Special)
12524	Nominates enterprise zone area (Special)
12525	Amends Ords. 9579 and 11053 which created additional liquor districts (Special)
12526	Easement acceptance (Special)
12527	Park use permission grant (Special)
12528	Grants special permit SP-95-06 (Special)
12529	Adds §§ 20.02.186 and 20.02.874; amends §§ 20.38.030(J), 20.46.030(J), 20.44.030(J), 20.46.030(J), and 20.48.030(I), zoning (Repealed by 16653)
12530	Rezone (Special)
12531	Rezone (Special)
12532	Rezone (Special)
12533	Alley vacation (Special)
12534	Amends Ord. 8064, classification and compensation plan (Special)
12535	Amends Ord. 8064, classification and compensation plan (Special)
12536	Amends Ord. 8064, classification and compensation plan (Special)
12537	Amends Ord. 11527 which created an additional liquor district (Special)
12538	Amends §§ 15.08.012, 15.08.050 and 15.08.070, street rentals (15.08)
12539	Grants electric franchise (Special)
12540	Amends § 13.24.040(E), city park and recreation areas (13.24)
12541	Park use permission grant (Special)
12542	Repeals and replaces Table 9.04.420(A), solid waste management (9.04)
12543	Designates Reinvestment Zone "M" (Special)
12544	Repeals §§ 20.08.220(C)(36) and 20.08.220(C)(38), zoning (Repealed by 16653)
12545	Adds Ch. 2.92, employees' health benefit program advisory board (Repealed by 16680)
12546	Amends §§ 20.08.180(C)(3), 20.10.030(R), 20.12.030(R), 20.14.030(P) and 20.18.050(R), zoning (Repealed by 16653)
12547	Park use permission grant (Special)
12548	Amends Ord. 9741, which created an additional liquor district (Special)
12549	Adds Ch. 14.24, commercial air carrier rates and charges (14.24)
12550	Amends §§ 20.16.010 and 20.16.020(C), zoning (Repealed by 16653)
12551	Easement vacation (Special)
12552	Amends § 12.88.060(A)(13), vehicles and traffic (12.88)
12553	Creates additional district for the sale of alcoholic beverages (Special)

Ordinance Number	
12554	Authorizes mayor to execute quitclaim deed (Special)
12555	Tax levy (Special)
12556	Rezone (Special)
12557	Amends § 2.20.060, board of parks and recreation (2.20)
12558	Amends Ord. 7545 which created an advisory board (Special)
12559	Amends Ord. 7691 and 10087 which created additional liquor districts (Special)
12560	Creates additional district for the sale of alcoholic beverages (Special)
12561	Amends Ord. 8065, civil service commission (Special)
12562	Amends Ord. 8064, classification and compensation plan (Special)
12563	Amends Ord. 8064, classification and compensation plan (Special)
12564	Amends Ord. 8064, classification and compensation plan (Special)
12565	Amends Ord. 8386 which created an additional liquor district (Special)
12566	Easement vacation (Special)
12567	Rezone (Special)
12568	Rezone (Special)
12569	Rezone (Special)
12570	Repeals Ord. 10638 which granted certain special privileges (Special)
12571	Amends Ord. 8064, classification and compensation plan (Special)
12572	Amends Ord. 8064, classification and compensation plan (Special)
12573	Amends Ord. 8064, classification and compensation plan (Special)
12574	Amends Ord. 8064, classification and compensation plan (Special)
12575	Amends Ord. 8064, classification and compensation plan (Special)
12576	Amends Ord. 8064, classification and compensation plan (Special)
12577	Grants temporary street closure privilege (Special)
12578	Adds §§ 5.90.022, 5.90.062, 5.90.092, 5.90.094 and 5.90.096; amends §§ 5.90.010, 5.90.020, 5.90.030, 5.90.032, 5.90.060 and 5.90.090, security alarm systems (5.90)
12579	Amends § 9.40.120(C), noise (9.40)
12580	Rezone (Special)
12581	Easement vacation (Special)
12582	Amends § 12.88.030, vehicles and traffic (12.88)
12583	Amends Ord. 11266 which created an additional liquor district (Special)
12584	Creates additional district for the sale of alcoholic beverages (Special)
12585	Amends § 12.88.150, vehicles and traffic (12.88)
12586	Grants temporary street closure privilege (Special)
12587	Special privilege granting encroachment onto public right-of-way (Special)
12588	Amends Ord. 8064, classification and compensation plan (Special)
12589	Amends §§ 2.88.020 and 2.88.030, architect-engineer selection committee (Repealed by 15693)
12590	Creates additional district for the sale of alcoholic beverages (Special)
12591	Creates additional district for the sale of alcoholic beverages (Special)

Ordinance Number	
12592	Creates additional district for the sale of alcoholic beverages (Special)
12593	Rezone (Special)
12594	Amends § 12.88.200, vehicles and traffic—schedules (12.88)
12595	Amends § 12.88.200, vehicles and traffic—schedules (12.88)
12596	Repeals subsection A(40) of § 12.88.060, vehicles and traffic—schedules (12.88)
12597	Rezone (Special)
12598	Amends Ord. 11778, liquor district establishment (Special)
12599	Rezone (Special)
12600	Amends §§ 20.61.010, 20.61.020 and 20.61.060K(1), zoning (Repealed by 16653)
12601	Grants special permit SP-95-18 (Special)
12602	Amends Ord. 10592, liquor district establishment (Special)
12603	Amends Ord. 7567, liquor district establishment (Special)
12604	Repeals Ord. 6339 (Repealed by 12667)
12605	Amends Ord. 11743, liquor district establishment (Special)
12606	Repeals Ords. 6964, 10296, 11523 (Repealer)
12607	Amends Ord. 8064, classification and compensation plan (Special)
12608	Amends Ord. 8064, classification and compensation plan (Special)
12609	Amends Ord. 8064, classification and compensation plan (Special)
12610	Grants special permit 95-20 (Special)
12611	Amends § 12.88.180(B)(2), vehicles and traffic—schedules (12.88)
12612	Amends § 12.88.180(B)(2), vehicles and traffic—schedules (12.88)
12613	Liquor district established (Special)
12614	Amends Ch. 2.92 [2.96], health benefit program advisory board (Repealed by 16680)
12615	Rezone (Special)
12616	Rezone (Special)
12617	Amends § 13.25.010, El Paso zoo (13.25)
12618	Amends Ord. 8064, classification and compensation plan (Special)
12619	Amends Ord. 8064, classification and compensation plan (Special)
12620	Amends Ord. 8064, classification and compensation plan (Special)
12621	Adds § 18.52.090; amends § 18.52.040, unsafe structures and conditions (Repealed by 15999)
12622	Calls for special election (Special)
12623	Repeals Ord. 9021 (Repealer)
12624	Street vacation (Special)
12625	Rezone (Special)
12626	Rezone (Special)
12627	Liquor district established (Special)
12628	Liquor district established (Special)
12629	Liquor district established (Special)
12630	Grants special privilege to close rights-of-way for block party (Special)
12631	Creates Enterprise Community Coordinating Committee (Repealed by 16246)
12632	Street vacation (Special)
12633	Bond issuance (Special)

Ordinance Number	
12634	Amends Ord. 10184, street and alley vacation (Special)
12635	Authorizes sale of lots (Special)
12636	Amends Ord. 10873, fees for foreign trade zone (Special)
12637	Adds § 10.12.020 and amends § 10.12.010, offenses against public peace (10.12)
12638	Amends Ord. 12246, easement vacation (Special)
12639	Grants special privilege to close street for movie production (Special)
12640	Rezone (Special)
12641	Rezone (Special)
12642	Bond issuance (Special)
12643	Tax and revenue certificate issuance (Special)
12644	Bond issuance (Special)
12645	Liquor district established (Special)
12646	Amends § 5.24.070; repeals § 5.24.060, charitable solicitations (5.24)
12647	Rezone (Special)
12648	Grants special permit SP-95-21 (Special)
12649	Grants special permit SP-95-25 (Special)
12650	Amends Ord. 8064, classification and compensation plan (Special)
12651	Amends Ord. 8064, classification and compensation plan (Special)
12652	Amends Ord. 8064, classification and compensation plan (Special)
12653	Amends Ord. 11189, liquor district establishment (Special)
12654	Permits use of Shawver Park by Upper Valley Lions Club (Special)
12655	Repeals Ord. 11204 (Repealer)
12656	Adds subsection G to § 2.40.060, museum department (2.40)
12657	Amends §§ 2.88.020, 2.88.030(E) and (G), architect-engineer selection committee (Repealed by 15693)
12658	Franchise grant to Life Ambulance Service, Inc. (Special)
12659	Rezone (Special)
12660	Rezone (Special)
12661	Rezone (Special)
12662	Grants special permit SP-95-24 (Special)
12663	Repeals Ord. 12474 (Repealed by 12774)
12664	Grants special privilege to American Garment Finishers Corporation to use pipeline within a portion of Durazno Street (Special)
12665	Grants special privilege to close streets and alleys for movie production (Special)
12666	Rezone (Special)
12667	Repeals Ords. 6330 and 12604 (Repealer)
12668	Amends § 5.08.100, alcoholic beverages (5.08)
12669	Repeals subsection L of § 20.66.130, zoning (Repealed by 16304)
12670	Amends Ord. 8065, rules and regulations of the civil service commission (Special)
12671	Alley vacation (Special)
12672	Grants special privilege to permit encroachment of two wall signs (Special)
12673	Liquor district established (Special)
12674	Amends Ord. 10125, liquor district establishment (Special)
12675	Amends §§ 9.04.030(5) and (28), 9.04.035, 9.04.060(A) and (B)(1), 9.04.090(C), 9.04.180(A) and (D),

Ordinance Number	
	9.04.190(A), (B) and (C), 9.04.220(A), (B)(1) and (C), 9.04.230(B), 9.04.245, 9.04.260A(1), 9.04.270(D), 9.04.370(A), 9.04.380(A) and (D), 9.04.400(A)(1), (2)(d)(iii), (B)(3), (4) and (F), 9.04.420(A) and 9.04.450, solid waste management (9.04)
12676	Amends Ord. 8064, classification and compensation plan (Special)
12677	Amends Ord. 8064, classification and compensation plan (Special)
12678	Amends Ord. 7677, employee safety program (Not codified)
12679	Rezone (Special)
12680	Grants special permit SP-95-19 (Special)
12681	Amends § 2.16.050, zoning board of adjustment (Repealed by 16888)
12682	Amends Ch. 18.20, plumbing code; repeals Ord. 11835 (Repealed by 14730)
12683	Amends Ch. 18.02, building and construction administrative code (18.02)
12684	Amends Ch. 18.16, electrical code; repeals Ord. 11833 (Repealed by 13315)
12685	Grants special permit SP-95-23 (Special)
12686	Liquor district established (Special)
12687	Amends § 12.88.150F(40), vehicles and traffic—schedules (12.88)
12688	Rezone (Special)
12689	Amends Ch. 18.08, building code; repeals Ord. 11836 (Repealed by 14729)
12690	Amends Ch. 18.24, gas code; repeals Ord. 11834 (Repealed by 14731)
12691	Amends Ch. 18.12, mechanical code; repeals Ord. 11832 (Repealed by 14732)
12692	Adds § 5.08.170, alcoholic beverages (5.08)
12693	Liquor district created (Special)
12694	Rezone (Special)
12695	Rezone (Special)
12696	Repeals Ord. 9697 (Repealer)
12697	Permits Humane Society to use Eastwood Park (Special)
12698	Amends Ord. 8064, classification and compensation plan (Special)
12699	Amends Ord. 8064, classification and compensation plan (Special)
12700	Adds § 9.44.211; amends §§ 9.44.010(D) and (G), 9.44.020—9.44.050, 9.44.090, 9.44.100, 9.44.110(A), 9.44.120, 9.44.160, 9.44.190, 9.44.210(F) and (G)(1), Arts. IV, V and VI; repeals Art. VII of Ch. 9.44, midwives (9.44)
12701	Repeals Ord. 12192 (Repealer)
12702	Repeals Ord. 12194 (Repealer)
12703	Repeals Ord. 12196 (Repealer)
12704	Repeals Ord. 12199 (Repealer)
12705	Repeals Ord. 12203 (Repealer)
12706	Repeals Ord. 12297 (Repealer)
12707	Amends Ord. 11724, special privilege to establish telecommunication system (Special)
12708	Rezone (Special)
12709	Grants special permit SP-95-27 (Special)
12710	Permits DBA Pesado Products to use Shawver Park (Special)
12711	Amends § 9.04.060(A), solid waste management (9.04)

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12712	Liquor district created (Special)
12713	Amends Ord. 007537, liquor district (Special)
12714	Alley vacation (Special)
12715	Rezone (Special)
12716	Designates reinvestment zone "N" (Special)
12717	Rezone (Special)
12718	Liquor district created (Special)
12719	Authorizes tax resale deed (Special)
12720	Amends Ord. 8064, classification and compensation plan (Special)
12721	Rezone (Special)
12722	Repeals and replaces §§ 9.56.020(B) and (D); repeals §§ 9.56.080 and 9.56.090, transportation of hazardous materials (Repealed by 13356)
12723	Amends Ord. 012432, rezone (Special)
12724	Amends Ords. 736, improvement district no. 3 (Special)
12725	Grants special privilege (Special)
12726	Liquor district created (Special)
12727	Repeals § 2.64.180(E) and reletters remaining subsections, city employees' pension fund (2.64)
12728	City employees' pension fund (2.64)
12729	Amends § 2.64.030(A), city employees' pension fund (2.64)
12730	Amends § 2.64.120(J), city employees' pension fund (2.64)
12731	Amends Ord. 012624, street vacation (Special)
12732	Rezone (Special)
12733	Street vacation (Special)
12734	Grants special privilege (Special)
12735	Amends Ord. 8064, classification and compensation plan (Special)
12736	Liquor district created (Special)
12737	Amends Ord. 010958 §§ 3 and 5, land exchange (Special)
12738	Amends §§ 10.20.010—10.20.050, 10.20.052 and 10.20.054, offenses by or against minors (10.20)
12739	Amends § 12.88.150H(5), K(2), L(1), R(2), R(4), R(4)(g) and (h); repeals § 12.88.150H(6), 12.88.150J(1) and (2), vehicles and traffic (12.88)
12740	Rezone (Special)
12741	Rezone (Special)
12742	Rezone (Special)
12743	Rezone (Special)
12744	Adds § 3.04.045, property taxes (3.04)
12745	Authorizes tax resale deed (Special)
12746	Permits Iglesia Del Padre, Del Hijo y Del Epiritu Santo to use Marty Robbins Park (Special)
12747	Amends Ord. 011681, liquor district (Special)
12748	Amends Ord. 9414, extends special privilege (Special)
12749	Rezone (Special)
12750	Amends § 2.16.010, zoning board of adjustment (Repealed by 16888)
12751	Amends §§ 18.02.105.1 and 18.02.105.2, building and construction administrative code (18.02)
12752	Amends Ord. 002217, liquor district (Special)
12753	Rezone (Special)
12754	Permits CASA to use Marwood Park (Special)
12755	Amends Ords. 012223 and 7216, liquor district (Special)
12756	Liquor district created (Special)

Ordinance Number		Ordinance Number	
12757	Amends § 13.08.160, excavations (13.08)		20.58.050(E)(8), (9) and (10), 20.60.040(23)(7) and (8),
12758	Grants special privilege (Special)		20.60.050(H)(6), (7) and (8),
12759	Grants special permit SP 96-03 (Special)		20.61.060(L)(7), (8) and (9); amends §§ 20.10.020(Q),
12760	Bond issuance (Special)		20.10.040(X)(1)(e),
12761	Bond issuance (Special)		20.12.040(T)(1)(e),
12762	Bond issuance (Special)		20.14.040(U)(1)(e),
12763	Adds §§ 20.10.040(X),		20.16.040(E)(1)(e),
	20.12.040(T)(7), (8) and (9),		20.18.060(P)(1)(e),
	20.14.040(U)(7), (8) and (9),		20.20.040(R)(1)(e),
	20.16.040(E)(7), (8) and (9),		20.22.040(Q)(1)(e),
	20.18.060(P)(7), (8) and (9),		20.24.040(P)(1)(e),
	20.20.040(R)(7), (8) and (9),		20.26.040(P)(1)(e),
	20.22.040(Q)(7), (8) and (9),		20.28.040(P)(1)(e),
	20.24.040(P)(7), (8) and (9),		20.30.040(P)(1)(e),
	20.26.040(N)(7), (8) and (9),		20.32.040(S)(1)(e),
	20.28.040(P)(7), (8) and (9),		20.34.040(J)(1)(d),
	20.30.040(P)(7), (8) and (9),		20.36.020(40)(a)(iv),
	20.32.040(S)(7), (8) and (9),		20.36.040(M)(1)(e),
	20.34.040(J)(8), (9) and (10),		20.38.020(50)(1)(d),
	20.36.030(40)(h) and (i),		20.38.040(N)(1)(e),
	20.36.040(M)(6), (7) and (8),		20.40.020(56)(d)(iii),
	20.38.020(50)(8) and (9),		20.40.040(P)(1)(e),
	20.38.040(N)(6), (7) and (8),		20.42.020(79)(d)(iii),
	20.40.020(56)(j) and (k),		20.42.040(O)(1)(e),
	20.40.040(P)(6), (7) and (8),		20.44.020(43)(d)(iii), 20.44.040
	20.42.020(A)(79)(j) and (k),		(I)(1)(e), 20.45.030(J)(1)(e),
	20.42.040(O)(6), (7) and (8),		20.45.041(E)(1)(e),
	20.44.020(43)(j) and (k),		20.46.020(16)(a)(v),
	20.44.040(I)(6), (7) and (8),		20.46.040(N)(1)(e),
	20.45.030(J)(7) and (8),		20.48.020(N)(1)(e),
	20.45.041(E)(6), (7) and (8),		20.48.040(K)(1)(e),
	20.46.020(16)(g) and (h),		20.50.020(N)(1)(e),
	20.46.040(N)(6), (7) and (8),		20.50.040(J)(1)(e),
	20.48.020(N)(7) and (8),		20.52.060(G)(1)(d),
	20.48.040(K)(6), (7) and (8),		20.54.060(I)(1)(e),
	20.50.020(N)(7) and (8),		20.56.060(I)(1)(e),
	20.50.040(J)(6), (7) and (8),		20.58.050(E)(1)(d),
	20.52.060(G)(8), (9) and (10),		20.60.040(23)(1)(e),
	20.54.060(I)(7), (8) and (9),		20.60.050(H)(1)(e) and
	20.56.060(I)(7), (8) and (9),		20.61.060(L)(1)(e),

Ordinance Number	
	zoning (Repealed by 16653)
12764	Rezone (Special)
12765	Rezone (Special)
12766	Rezone (Special)
12767	Grants special privilege (Special)
12768	Repeals Ord. 012663, liquor district (Repealer)
12769	Permits Mike Edwards Enterprises to use Shawver Park (Special)
12770	Permits Pesado Productions to use Shawver Park (Special)
12771	Amends Ord. 8064, classification and compensation plan (Special)
12772	Amends Ord. 8064, classification and compensation plan (Special)
12773	Amends Ord. 8064, classification and compensation plan (Special)
12774	Amends § 2.64.030(A), city employees' pension fund (2.64)
12775	Rezone (Special)
12776	Authorizes quit claim deed (Special)
12777	Permits Angels Triangle Association Sponsor of Boy Scout Troop 777 to use Wellington Chew Park and Senior Center Facility (Special)
12778	Amend § 12.88.030(231), vehicles and traffic (12.88)
12779	Amends §§ 18.02.101.3.1, 18.02.103.7.1 and 18.02.108.3.3; repeals items 27 and 28 from § 18.02.109.4.1 and renumbers remaining items, building and construction administrative code (18.02)
12780	Amends §§ 18.02.108.2 and 18.02.109.3.2, building and construction administrative code (18.02)
12781	Rezone (Special)
12782	Rezone (Special)
12783	Rezone (Special)
12784	Grants special permit SP-96-02
12785	Amends Ord. 8064, classification and compensation plan (Special)
12786	Rezone (Special)
12787	Rezone (Special)
12788	Grants special privilege for temporary street closure (Special)
12789	Grants special privilege for temporary street closure (Special)
12790	Grants special privilege for temporary street closure (Special)
12791	Amends § 3.12.010, hotel room tax (3.12)
12792	Amends § 13.16.010(B), insurance requirements for work within right-of-way of public streets and alleys (13.16)
12793	Permits United Latin American Citizens Council No. 132 to use Hugo Meyer Field and Washington Park (Special)
12794	Amends Ord. 8064, classification and compensation plan (Special)
12795	Creates additional district for the sale of alcoholic beverages (Special)
12796	Designates Reinvestment Zone O (Special)
12797	Rezone (Special)
12798	Adds § 20.16.040(A), zoning (Repealed by 16653)
12799	Subdivision easement vacation (Special)
12800	Vacates a portion of Plaza Circle (Special)
12801	Amends Ord. 8064, classification and compensation plan (Special)
12802	Amends Ord. 8064, classification and compensation plan (Special)
12803	Amends Ord. 8064, classification and compensation plan (Special)

Ordinance Number	
12804	Amends Ord. 8064, classification and compensation plan (Special)
12805	Creates additional district for the sale of alcoholic beverages (Special)
12806	Amends Ord. 12240, rezone (Special)
12807	Permits Mr. Luis Aleman to use Mission Hills Park (Special)
12808	Permits Private Industry Council to use Eastwood (Album) Park (Special)
12809	Amends Ord. 8064, classification and compensation plan (Special)
12810	Amends Ord. 8064, classification and compensation plan (Special)
12811	Grants special permit SP-96-01 (Special)
12812	Grants special permit SP-96-04 (Special)
12813	Rezone (Special)
12814	Amends § 18.02.103.1.1.6.5, building and construction administrative code (18.02)
12815	Amends § 2.16.050(B) and (K), zoning board of adjustment (Repealed by 16888)
12816	Amends § 18.20.130, plumbing code (18.20)
12817	Adds § 15.08.120(D)(2)(h)[i], street rentals (15.08)
12818	Grants special privilege for temporary street closure (Special)
12819	Amends Ord. 8065, civil service rules and regulations (Special)
12820	Authorizes quitclaim deed (Special)
12821	Authorizes quitclaim deed (Special)
12822	Authorizes quitclaim deed (Special)
12823	Authorizes quitclaim deed (Special)
12824	Amends Ord. 8064, classification and compensation plan (Special)
12825	Rezone (Special)
12826	Amends §§ 19.28.030(A) and 19.28.110(F), subdivisions (19.28)
12827	Rezone (Special)
12828	Rezone (Special)
12829	Rezone (Special)
12830	Rezone (Special)
12831	Rezone (Special)
12832	Grants special permit SP-96-05 (Special)
12833	Approves the assignment of a special privilege granted by Ord. 11798 (Special)
12834	Grants special privilege for encroachment of two wall signs and one projection sign (Special)
12835	Amends § 13.04.045, street and sidewalk construction and maintenance (13.04)
12836	Amends Ch. 19.26, parking dedication (19.26)
12837	Permits Tarde De Oro sponsored by AARP and Channel 26 KINT TV to use Memorial Park Reserve Area (Special)
12838	Authorizes quitclaim deed (Special)
12839	Adds § 18.08.230, vehicles and traffic (12.08)
12840	Amends Ord. 8064, classification and compensation plan (Special)
12841	Amends Ord. 8064, classification and compensation plan (Special)
12842	Amends Ord. 8064, classification and compensation plan (Special)
12843	Amends Ord. 8064, classification and compensation plan (Special)
12844	Amends Ord. 8064, classification and compensation plan (Special)

Ordinance Number	
12845	Grants special privilege to use three-eight inch private sewer mains within drainage right-of-way in Los Cerritos Addition (Special)
12846	Amends §§ 13.04.015(D) and 13.04.040, street and sidewalk construction and maintenance (13.04)
12847	Permits Mrs. Guadalupe Abbud to use Madeline Park (Special)
12848	Amends § 12.88.040(G), vehicles and traffic (12.88)
12849	Amends § 12.88.010, vehicles and traffic (12.88)
12850	Rezone (Special)
12851	Grants special permit SP-96-06 (Special)
12852	Utility easement vacations (Special)
12853	Permits Rio Grande Transportation Association to use Sue Young Park (Special)
12854	Creates a new communications department of the city (Repealed by 15216)
12855	Amends Ord. 8065, rules and regulations of the civil service commission (Special)
12856	Amends § 12.88.030, vehicles and traffic (12.88)
12857	Repeals Ord. 10126 (Repealer)
12858	Rezone (Special)
12859	Grants special permit SP-07 (Special)
12860	Permits Vineyard Christian Fellowship to use Franklin Park (Special)
12861	Amends Ord. 8064, classification and compensation plan (Special)
12862	Amends Ord. 8064, classification and compensation plan (Special)
12863	Rezone (Special)
12864	Grants non-exclusive franchise to GST Texas Lightwave Inc. (Special)
12865	Amends Ords. 10323 and 12336 (Special)
12866	Designates Reinvestment Zone "P" (Special)
12867	Street vacation (Special)
12868	Grants special privilege for temporary street closure (Special)
12869	Grants special privilege for temporary street closure (Special)
12870	Drainage easement vacation (Special)
12871	Amends Ord. 010081, additional district for the sale of alcoholic beverages (Special)
12872	Easements vacation (Special)
12873	Adds Ch. 20.53, U-P Union Plaza district (Repealed by 16653)
12874	Adds § 20.66.335, zoning (Repealed by 16653)
12875	Rezone (Special)
12876	Rezone (Special)
12877	Rezone (Special)
12878	Rezone (Special)
12879	Amends the bounce of the West Central El Paso Enterprise Zone (Special)
12880	Authorizes quitclaim deed (Repealed by 13067)
12881	Permits use of a portion of Pavo Real Park (Special)
12882	Amends Ord. 8064, classification and compensation plan (Special)
12883	Amends Ord. 8064, classification and compensation plan (Special)
12884	Amends Ord. 8064, classification and compensation plan (Special)
12885	Amends Ord. 8064, classification and compensation plan (Special)

Ordinance Number	
12886	Permits use of a portion of Madeline Park (Special)
12887	Amends § 5.08.010(A), alcoholic beverages (5.08)
12888	Grants special privilege to permit encroachment of sign (Repealed by 13954)
12889	Grants special privilege to permit encroachment of security fence (Special)
12890	Authorizes sale of portions of subdivisions (Special)
12891	Authorizes exchange of land (Special)
12892	Authorizes quitclaim deed (Special)
12893	Grants special privilege for long distance telecommunications system (Special)
12894	Amends Ord. 8183, liquor district (Special)
12895	Liquor district established (Special)
12896	Amends Ord. 9053, liquor district (Special)
12897	Amends Ord. 8064, classification and compensation plan (Special)
12898	Amends Ord. 8064, classification and compensation plan (Special)
12899	Amends Ord. 8064, classification and compensation plan (Special)
12900	Repeals Ord. 7568 (Repealer)
12901	Repeals Ord. 11308 (Repealer)
12902	Repeals Ord. 7945 (Repealer)
12903	Repeals Ord. 9467 (Repealer)
12904	Repeals Ord. 7559 (Repealer)
12905	Repeals Ord. 7558 (Repealer)
12906	Authorizes agreement with Ysleta Independent School District to build sports fields (Special)
12907	Street and easement vacation (Special)
12908	Adds § 13.25.015; amends §§ 13.25.010 and 13.25.020, El Paso Zoo (13.25)
12909	Amends Ords. 12141 and 10739, library fine fee schedule (Special)
12910	Amends § 13.32.040(C), parades and temporary events (13.32)
12911	Amends § 5.24.050, charitable solicitations (5.24)
12912	Amends §§ 13.28.020(C) and 13.28.040, sound amplifying devices (13.28)
12913	Amends § 13.24.200, city parks and recreation areas (Repealed by 14020)
12914	Amends § 9.77.020, hazardous materials and other miscellaneous permits and license schedules (Repealed by 13356)
12915	Amends § 19.40.010, subdivisions (19.40)
12916	Records and information charges (Special)
12917	Records and information charges (Special)
12918	Amends §§ 9.04.040(B), 9.04.060(B)(2), 9.04.400(A)(3), 9.04.400(C)—(E), 9.04.410(A), (B) and (G), 9.04.420(A), (B)(1) and 9.04.430(C), solid waste management (9.04)
12919	Authorizes interlocal license agreement with the community college (Special)
12920	Amends Ord. 8064, classification and compensation plan (Special)
12921	Permits use of a portion of Eastwood (Album) Park (Special)
12922	Creates liquor district (Special)
12923	Creates liquor district (Special)
12924	Creates liquor district (Special)

Ordinance Number	
12925	Amends Ord. 6822, liquor district (Special)
12926	Creates liquor district (Special)
12927	Amends Ord. 8064, classification and compensation plan (Special)
12928	Approves assignment of special privilege granted by Ord. 12402 (Special)
12929	Grants special privilege to permit encroachment of awning (Special)
12930	Grants special privilege to permit encroachment of wall sign (Special)
12931	Rezone (Special)
12932	Grants special permit SP 96-10 (Special)
12933	Grants special privilege to permit temporary use of sidewalks for sale (Special)
12934	Authorizes lease of senior center for bingo (Special)
12935	Repeals Ord. 9717 (Repealer)
12936	Amends § 12.56.010(A), parking meters (Expired)
12937	Amends § 12.88.130, schedules (Expired)
12938	Amends Ord. 8064, classification and compensation plan (Special)
12939	Amends Ord. 8064, classification and compensation plan (Special)
12940	Amends Ord. 8064, classification and compensation plan (Special)
12941	Amends Ord. 8064, classification and compensation plan (Special)
12942	Amends Ord. 8065, rules and regulations of the civil service commission (Special)
12943	Grants special privilege to temporarily close a portion of Mills Avenue (Special)
12944	Grants special privilege to permit encroachment of awning (Special)
12945	Amends §§ 13.24.010, 13.24.040(B) and 13.24.050(A) and (B), city parks and recreation areas (13.24)
12946	1996 tax levy (Special)
12947	Grants special permit SP-96-09 (Special)
12948	Rezone (Special)
12949	Amends § 13.32.040(A) and 13.32.100, parades and demonstrations (13.32)
12950	Authorizes quitclaim deed (Special)
12951	Amends § 12.88.150(F), schedules (12.88)
12952	Amends § 12.88.150(G), schedules (12.88)
12953	Amends § 2.64.180, city employees' pension fund (2.64)
12954	Amends Ord. 8064, classification and compensation plan (Special)
12955	Amends Ord. 8064, classification and compensation plan (Special)
12956	Amends Ord. 8064, classification and compensation plan (Special)
12957	Amends Ord. 8064, classification and compensation plan (Special)
12958	Amends Ord. 9699, rezone (Repealed by 16756)
12959	Permits use of a portion of Hacienda Heights Park (Special)
12960	Amends § 12.88.150(F), schedules (12.88)
12961	Amends § 12.88.150(G), schedules (12.88)
12962	Amends § 12.88.030, schedules (12.88)
12963	Grants special privilege to permit encroachment of sign (Special)
12964	Grants special privilege to temporarily close streets and alleys (Special)

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12965	Adds Ch. 13.40, graffiti abatement (13.40)
12966	Grants special permit SP-96-12 (Special)
12967	Grants special permit SP-96-13 (Special)
12968	Rezone (Special)
12969	Rezone (Special)
12970	Rezone (Special)
12971	Grants special permit SP-96-11 (Special)
12972	Grants special permit SP-96-16 (Special)
12973	Grants special privilege to temporarily close portion of street (Special)
12974	Amends Ord. 9611, liquor district (Special)
12975	Street vacation (Special)
12976	Alley vacation (Special)
12977	Rezone (Special)
12978	Rezone (Special)
12979	Grants special privilege to permit encroachment of sign (Special)
12980	Amends Ord. 8064, classification and compensation plan (Special)
12981	Grants special permits SP-96-14 (Special)
12982	Authorizes license agreement (Special)
12983	Grants special permits SP-96-17 (Special)
12984	Easement vacation (Special)
12985	Street vacations (Special)
12986	Amends § 12.88.150(G)(22), schedules (12.88)
12987	Amends § 12.88.150(G), schedules (12.88)
12988	Amends Ord. 9221, liquor district (Special)
12989	Amends Ch. 14.24, Appx. A, airline rates and charges (14.24)
12990	Grant special privilege to temporarily close a street (Special)
12991	Bond issuance (Special)
12992	Rezone (Special)
12993	Liquor district established (Repealed by 13681)
12994	Liquor district established (Special)
12995	Repeals Ord. 11646 (Repealer)
12996	Repeals Ord. 5349 (Repealer)
12997	Repeals Ord. 8381 (Repealer)
12998	Repeals Ord. 5061 (Repealer)
12999	Repeals Ord. 5314 (Repealer)
13000	Repeals Ord. 7860 (Repealer)
13001	Repeals Ords. 5734 and 6058 (Repealer)
13002	Repeals Ord. 6909 (Repealer)
13003	Liquor district established (Special)
13004	Amends Ord. 8065, rules and regulations of the civil service commission (Special)
13005	Easement vacation (Special)
13006	Authorize sale of public service board property (Special)
13007	Rezone (Special)
13008	Adds §§ 20.02.317, 20.02.318, 20.10.020(R) and (S), 20.12.020(M) and (N), 20.14.020(N) and (O), 20.16.020(D) and (E), 20.20.020(P) and (Q), 20.22.020(S) and (T), 20.24.020(S) and (T), 20.26.020(M) and (N), 20.28.020(T) and (U), 20.30.020(P) and (Q), 20.32.020(P) and (Q), 20.34.020(M), (N) and (O), 20.36.020(43) and (44), 20.38.020(53) and (54),

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	20.40.020(58) and (59), 20.42.020(80) and (81), 20.44.040(44) [20.44.020(44)], 20.45.030(K) and (L), 20.46.020(18) and (19), 20.48.020(R) and (S), 20.50.020(R) and (S), 20.52.040(P) and (Q), 20.54.040(17) and (18), 20.56.040(17) and (18), 20.58.040(25), (26) and (27), 20.60.040(25) and (26), 20.61.030(K) and (L); amends §§ 20.10.020(Q), 20.12.040(T), 20.14.040(U), 20.16.040(E)[(F)], 20.18.060(P), 20.20.040(R), 20.22.040(Q), 20.24.040(P), 20.26.040(N), 20.28.040(P), 20.30.040(P), 20.32.040(S), 20.34.040(J), 20.36.020(40), 20.36.040(M), 20.38.020(50), 20.38.040(N), 20.40.020(56), 20.40.040(P), 20.42.020(79), 20.42.040(O), 20.44.040(43) [20.44.020(43)], 20.44.040(I), 20.45.030(J), 20.46.020(16), 20.48.020(N), 20.50.020(N), 20.52.060(G), 20.54.060(I), 20.56.060(I), 20.58.050(E), 20.60.040(23); repeals §§ 20.10.040(X) and (Y), 20.12.040(W), 20.14.040(W), 20.16.040(G)[(H)], 20.18.060(R), 20.20.040(U), 20.22.040(T), 20.24.040(S), 20.26.040(P), 20.28.040(S), 20.30.040(S), 20.32.040(U), 20.34.030(K), 20.34.040(L), 20.36.030(P), 20.36.040(N), 20.38.030(P), 20.38.040(O), 20.40.030(P), 20.40.040(Q), 20.42.030(Q), 20.42.040(P), 20.44.030(Q), 20.44.040(J), 20.45.040(H), 20.46.030(N), 20.48.030(N), 20.50.030(N), 20.52.040(J), 20.52.060(I), 20.54.060(K), 20.56.060(K), 20.58.040(23)(J), 20.58.050(G), zoning (Repealed by 16653)
13009	Rezone (Special)
13010	Grants special permit SP-96-20 (Special)
13011	Grants special permit SP-96-18 (Special)
13012	Repeals Ord. 7859 (Repealer)
13013	Liquor district established (Special)
13014	Amends § 2.04.050, boards, commissions and committees generally (2.04)
13015	Amends Ord. 11568, liquor district (Special)
13016	Amends Ch. 20.67, zoning (Repealed by 16653)
13017	Rezone (Special)
13018	Rezone (Special)
13019	Grants special permit SP-96-22 (Special)
13020	Grants special permit SP-96-21 (Special)
13021	Rezone (Special)
13022	Amends § 19.04.370 and Ch. 19.36; repeals §§ 19.28.130, 19.32.020, 19.32.030, 19.32.120 and 19.32.140, subdivisions (19.04, 19.36)
13023	Rezone (Special)
13024	Adds § 13.20.040(C), miscellaneous street and sidewalk use regulations (Not codified)
13025	Adds § 15.08.120(C)(8), street rentals (15.08)
13026	Grants special permit SP-96-19 (Special)

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13027	Rezone (Special)
13028	Rezone (Special)
13029	Rezone (Special)
13030	Amends § 12.68.060, visibility obstruction (12.68)
13031	Adds § 15.08.120(D)(2)(j), street rentals (15.08)
13032	Easement vacation (Special)
13033	Rezone (Special)
13034	Rezone (Special)
13035	Rezone (Special)
13036	Rezone (Special)
13037	Rezone (Special)
13038	Rezone (Special)
13039	Amends Ord. 8064, classification and compensation plan (Special)
13040	Amends Ord. 8064, classification and compensation plan (Special)
13041	Amends Ord. 8064, classification and compensation plan (Special)
13042	Amends Ord. 8064, classification and compensation plan (Special)
13043	Amends Ord. 8064, classification and compensation plan (Special)
13044	Amends Ord. 8064, classification and compensation plan (Special)
13045	Amends Ord. 8064, classification and compensation plan (Special)
13046	Amends Ord. 8064, classification and compensation plan (Special)
13047	Amends Ord. 8064, classification and compensation plan (Special)
13048	Amends Ord. 8064, classification and compensation plan (Special)
13049	Amends Ord. 8064, classification and compensation plan (Special)
13050	Amends Ord. 8064, classification and compensation plan (Special)
13051	Amends Ord. 8064, classification and compensation plan (Special)
13052	Amends Ord. 8064, classification and compensation plan (Special)
13053	Amends Ord. 8064, classification and compensation plan (Special)
13054	Amends Ord. 8064, classification and compensation plan (Special)
13055	Amends Ord. 8064, classification and compensation plan (Special)
13056	Amends Ord. 8064, classification and compensation plan (Special)
13057	Amends Ord. 8064, classification and compensation plan (Special)
13058	Amends Ord. 8064, classification and compensation plan (Special)
13059	Amends Ord. 8064, classification and compensation plan (Special)
13060	Easement vacation (Special)
13061	Amends §§ 9.08.010, 9.08.030(A)—(C), 9.08.040(C), 9.08.050(A) and 9.08.060, junked vehicles (9.08)
13062	Amends §§ 2.16.050(K)(2), 2.88.030(D), 9.04.060(B)(1), 9.76.040, 12.44.170(A)—(C), 12.44.180, 12.44.280(B)(1) and (E), 12.48.010(A) and (B), 12.56.010(B), 12.64.010(A) and (B), 12.64.040(B), 12.64.050(A), 12.68.060(A)(3), (B)(1), (C)(2), (C)(4) and (C)(5), 12.88.130(A) and (B)(1)—(5), 13.04.015(D), 13.04.040(A)(1) and (2), (B)(1), (C), (D) and (E)(2), 13.08.175(D)(4) and (E), 13.12.020(B), 13.12.040(B), 19.04.582, 19.24.010(F), 19.36.020(A)(3)(b), (4)(b) and (d)(6), (5)(b) and (6)(b), 19.36.080(D), 19.36.120, 19.36.130(A) and (B)(1), 20.02.848, 20.04.010, 20.04.080, 20.04.090, 20.08.130(J), 20.08.209(B)(3), (C)(6) and (C)(12), 20.08.220(D),

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	20.08.320(C), 20.36.020(A)(2), 20.40.020(6), 20.44.020(2), 20.58.040(2), 20.61.060(2)(b) [20.61.060(K)(2)(b)], 20.64.010(B), 20.64.020, 20.64.060—20.64.080, 20.64.140, 20.64.200(B), 20.66.100(D), 20.66.130(A) and 20.66.275(6)(c) [20.66.275(B)(6)(c)], traffic engineer (9.04, 9.76, 12.44, 12.48, 12.56, 12.64, 12.68, 12.88, 13.04, 13.08, 13.12, 19.04, 19.24, 19.36)
13063	Bond issuance (Special)
13064	Amends Ord. 8064, classification and compensation plan (Special)
13065	Amends Ord. 12895, liquor district (Special)
13066	Amends Ord. 10325, liquor district (Special)
13067	Repeals Ord. 12880 (Repealer)
13068	Authorizes conveyance of property (Special)
13069	Liquor district established (Special)
13070	Liquor district established (Special)
13071	Amends Ord. 12906, agreement to build sports fields (Special)
13072	Amends Ord. 4886, liquor district (Special)
13073	Grants special permit SP-95-22 (Special)
13074	Permits use of Hugo Meyer Field and Washington Park (Special)
13075	Amends Ord. 8064, classification and compensation plan (Special)
13076	Amends §§ 12.44.170(C), 18.60.430(J)—(L), 18.60.440(B), 18.60.450 and 19.36.080(D), deputy director of streets (12.44, 18.60, 19.36)
13077	Amends §§ 5.20.060, 9.04.030(28), 9.04.210, 9.20.070(B) and 9.20.160, deputy director for solid waste management (5.20, 9.04)
13078	Grants special privilege to permit encroachment of sign, awning and handicapped ramp (Special)
13079	Amends Ord. 13063, bond issuance (Special)
13080	Designates reinvestment zone Q (Special)
13081	Rezone (Special)
13082	Rezone (Special)
13083	Rezone (Special)
13084	Rezone (Special)
13085	Rezone (Special)
13086	Amends § 2.64.200(A) and (E), city employees' pension fund (2.64)
13087	Repeals Ord. 012193 (Repealer)
13088	Amends § 9.04.190(C), solid waste management (9.04)
13089	Amends Ord. 8064, classification and compensation plan (Special)
13090	Amends Ord. 8064, classification and compensation plan (Special)
13091	Amends Ord. 8064, classification and compensation plan (Special)
13092	Amends Ord. 8064, classification and compensation plan (Special)
13093	Amends Ord. 8064, classification and compensation plan (Special)
13094	Amends Ord. 10474 to abolish "Safe 2000" committee (Special)
13095	Liquor district established (Special)
13096	Adds § 20.42.040(P); amends §§ 20.10.020(J), 20.10.050(A)(1), 20.38.020(31), 20.40.020(43), 20.42.020(57), zoning (Repealed by 16653)

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13097	Grants special permit SP-96-24 (Special)
13098	Adds § 12.44.180(28), stopping, standing and parking (12.44)
13099	Amends § 12.48.020, loading zones, bus and taxistands (12.48)
13100	Easement vacation (Special)
13101	Easement vacation (Special)
13102	Grants special privilege to permit construction and maintenance of awning (Special)
13103	Grants special privilege to permit encroachment of projecting sign (Special)
13104	Grants special privilege to permit encroachment of projecting roof sign (Special)
13105	Franchise grant to Sunwest Ambulance, Inc., nonemergency ambulance transfer service (Special)
13106	1997 general election (Special)
13107	Grants special permit SP-96-34 (Special)
13108	Grants special permit SP-96-36 (Special)
13109	Approves special privilege to permit two wall signs and one projection sign (Special)
13110	Amends §§ 18.44.060(A) and 18.44.070; repeals §§ 18.44.040(B), 18.44.120 and 18.44.230, grading (18.44)
13111	Amends T. 19, subdivisions (19.04, 19.08, 19.12, 19.16, 19.20, 19.24, 19.28, 19.32, 19.36, 19.40, 19.44, 19.48)
13112	Amends Ord. 8064, classification and compensation plan (Special)
13113	Amends Ord. 8064, classification and compensation plan (Special)
13114	Amends Ord. 11439, golf driving range facility lease (Special)
13115	Liquor district established (Special)
13116	Amends Ord. 10325, liquor district (Special)
13117	Amends Ords. 9579, 11053 and 12525, liquor districts (Special)
13118	Amends Ord. 3017, liquor district (Special)
13119	Grants special permit SP-96-25 (Special)
13120	Grants special privilege to permit encroachment of handicapped ramp (Special)
13121	Amends Ord. 6395, liquor district (Special)
13122	Bond issuance (Special)
13123	Bond issuance (Special)
13124	Bond issuance (Special)
13125	Amends §§ 20.66.070 and 20.66.260(D), zoning (Repealed by 16653)
13126	Grants special privilege to permit encroachment of two subdivision identification signs (Special)
13127	Rezone (Special)
13128	Rezone (Special)
13129	Amends Ord. 8064, classification and compensation plan (Special)
13130	Amends Ord. 8064, classification and compensation plan (Special)
13131	Authorizes sale of public service board property (Special)
13132	Permits use of Hugo Meyer Field and Washington Park (Special)
13133	Liquor district established (Special)
13134	Franchise grant to Paul Berube, litter receptacles (Special)
13135	Amends § 13.08.160, excavations (13.08)
13136	Amends Ord. 12451, rezone (Special)
13137	Grants special permit SP-96-38 (Special)

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13138	Grants special permit SP-96-15 (Special)
13139	Grants special permit SP-97-02 (Special)
13140	Grants special permit SP-96-08 (Special)
13141	Permits El Pasoans for Life the use of a portion of Memorial Park (Special)
13142	Permits Humane Society the use of a portion of Eastwood (Album) Park (Special)
13143	Amends Ord. 7033, liquor district (Special)
13144	Amends Ord. 8064, classification and compensation plan (Special)
13145	Amends Ord. 8064, classification and compensation plan (Special)
13146	Amends Ord. 8064, classification and compensation plan (Special)
13147	Amends Ord. 8064, classification and compensation plan (Special)
13148	Amends Ord. 8064, classification and compensation plan (Special)
13149	Amends Ord. 8064, classification and compensation plan (Special)
13150	Amends Ord. 8064, classification and compensation plan (Special)
13151	Amends Ord. 13106, 1997 general election (Special)
13152	Amends §§ 2.08.010, 2.16.050(E), (O)(2) and (P)(2), 2.16.060(A) and (B), 2.88.020(B) and (I), 2.88.030(A)—(C), (E), (I) and (J), 5.08.160, 5.16.040, 5.16.050(C), 5.16.060(B), 5.16.080, 5.16.090, 5.20.050, 5.20.060, 5.36.030(B), 5.36.090, 5.44.040(A), 5.44.100, 5.44.260, 5.60.020, 5.60.030, 5.108.020, 5.108.050(B), 5.112.010, 6.16.460, 6.40.110(E), 9.04.030(28), 9.04.050(B)(2) and (4), 9.04.060(A)(3) and (B)(1), 9.04.100(C), 9.04.180(C), 9.04.190(B) and (D), 9.04.210(C)(3), (C)(4) and (D), 9.04.220(C), 9.04.230, 9.04.250(C)(1) and (2), 9.04.260(A)(1), 9.04.270(B), 9.04.300(A), and (C), 9.04.310, 9.04.320(A) and (E)(2), 9.04.330, 9.04.370(A)(1), (7), (10), (12) and (13), 9.04.380(A), (C) and (D), 9.04.400(A)(2) (b) , (A)(2)(d)(iii), (A)(2)(f), (A)(2)(g), (A)(2)(h)(iii), (A)(2)(j), (A)(2)(k), (A)(2)(l), (A)(2)(n) and (F), 9.04.420(B)(3) and (4), 9.04.430(B) and (C), 9.08.010, 9.08.030(A)—(C) and (G), 9.08.050(A), 9.08.060, 9.12.580(A), 9.20.070(B), 9.50.150, 9.52.010(B), 9.52.060, 9.52.070(A), (B) and (E), 9.52.080, 9.52.090, 9.52.110, 9.52.120, 9.52.130(A), 9.52.150, 9.52.160, 9.52.161(E), 9.52.170(A)—(C), 9.52.190(A), 9.52.200(A), 9.52.220, 9.52.240(B), 9.52.250(A), 9.52.260(D), 9.52.270, 9.56.010, 9.56.020(E), 9.56.030(B), 9.56.050(A)(1)—(3), (B), and (D), 9.56.110, 9.64.020, 9.68.020(A), and (B), 9.68.030, 9.68.080(B), 9.68.090, 9.68.120(A), (C) and (D), 9.68.130, 9.68.150(B), (D), (E) and (F), 9.68.170, 9.68.180, 9.68.190(B)(5), (B)(7), (B)(8), (B)(11)(c), (C)(1), (C)(3) and (E)(1), 9.72.020, 9.72.030(B), 9.74.020, 9.76.010(A), 9.76.020, 9.76.030, 9.76.060(A) and (C), 9.84.040(B), 12.04.190, 12.08.220(A), (A)(12) and (I),

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13153	Authorizes quitclaim deed (Special)
13154	Amends Ord. 13068, conveyance of property (Special)
13155	Amends Ord. 8064, classification and compensation plan (Special)
13156	Liquor district established (Special)
13157	Authorizes conveyance of property (Special)
13158	Easement vacation (Special)
13159	Easement vacation (Special)
13160	Amends Ord. 8064, classification and compensation plan (Special)
13161	Grants special privilege to temporarily close down streets (Special)
13162	Amends Ord. 12385, liquor district (Special)
13163	Liquor district established (Special)
13164	Repeals Ord. 9670 (Repealer)
13165	Grants right of entry (Special)
13166	Grants special privilege to permit landscaping and parking (Special)
13167	Grants special privilege to permit overflow parking (Special)
13168	Bond issuance (Special)
13169	Amends Ord. 2217, liquor district (Special)
13170	Amends Ord. 10325, liquor district (Special)
13171	Authorizes mayor to sign license agreement (Special)
13172	Rezone (Special)
13173	Rezone (Special)
13174	Permits use of Hugo Meyer Field and Washington Park by Pesado Promotions (Special)
13175	Permits El Paso Association for the Performing Arts to use portion of park (Special)
13176	Grants special privilege to temporarily close a block (Special)
13177	Grants special privilege to temporarily close a block (Special)
13178	Amends § 15.08.120(C)(2), street rentals (15.08)
13179	Amends Ord. 5514, liquor district (Special)
13180	Authorizes mayor to execute a quitclaim deed (Special)
13181	Permits Streetball Partners International to use portion of park (Special)
13182	Amends §§ 9.12.140, 9.12.240 and 9.12.250, food and food handling establishments (9.12)
13183	Amends Ord. 3017, liquor district (Special)
13184	Authorizes lease of senior citizen center (Special)
13185	Authorizes lease of senior citizen center (Special)
13186	Amends Ord. 8064, classification and compensation plan (Special)
13187	Amends Ord. 8064, classification and compensation plan (Special)

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13188	Amends Ord. 8064, classification and compensation plan (Special)
13189	Amends Ord. 8064, classification and compensation plan (Special)
13190	Amends Ord. 8064, classification and compensation plan (Special)
13191	Allows Southwestern Bell Telephone Company to use public rights-of-way (Special)
13192	Repeals § 20.08.220(C), zoning (Repealed by 16653)
13193	Grants special permit SP-97-05 (Special)
13194	Grants special privilege to permit encroachment of sign onto public right-of-way (Special)
13195	Grants special privilege to temporarily close street (Special)
13196	Rezone (Special)
13197	Rezone (Special)
13198	Rezone (Special)
13199	Rezone (Special)
13200	Rezone (Special)
13201	Liquor district established (Special)
13202	Amends Ord. 10325, liquor district (Special)
13203	Permits Adelante to use portion of park (Special)
13204	Permits Arthritis Foundation to use portion of park (Special)
13205	Amends § 12.88.030, parking (12.88)
13206	Amends § 12.88.030, parking (12.88)
13207	Amends Ord. 8064, classification and compensation plan (Special)
13208	Authorizes conveyance and exchange of property (Special)
13209	Amends Ord. 8576, alley vacation (Special)
13210	Amends § 12.88.030, parking (12.88)
13211	Rezone (Special)
13212	Grants special permit SP-97-04 (Special)
13213	Amends Ord. 8065, rules and regulations of the civil service commission (Special)
13214	Amends Ord. 8065, rules and regulations of the civil service commission (Special)
13215	Amends Ord. 8065, rules and regulations of the civil service commission (Special)
13216	Amends Ord. 8064, classification and compensation plan (Special)
13217	Amends Ord. 8064, classification and compensation plan (Special)
13218	Amends 11319, liquor district (Special)
13219	Amends §§ 2.64.120(D)(1), (4), (H)(1), (I)(3), (K)(2), 2.64.140 first paragraph, 2.65.140(A), (D) and (E)(2), 2.64.170(A), 2.64.190(A), 2.64.200(F)(6) and 2.64.400, city employees' pension fund (2.64)
13220	Bond issuance (Special)
13221	Repeals Ords. 11583 and 11732 (Repealer)
13222	Grants special privilege to permit encroachment of sign onto public right-of-way (Special)
13223	Repeals Ord. 11380 (Repealer)
13224	Amends Ch. 12.88.030, parking (12.88)
13225	Amends Ch. 12.88.030, parking (12.88)
13226	Liquor district established (Repealed by 13960)

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13227	Liquor district established (Special)
13228	Grants special privilege to permit off-street parking on a portion of public right-of-way (Special)
13229	Repeals Ord. 10172 (Repealer)
13230	Permits Pesado Promotions to use portion of park (Special)
13231	Liquor district established (Special)
13232	Amends Ord. 12336, liquor district (Special)
13233	Liquor district established (Special)
13234	Amends Ords. 12309, 12024 and 11639, liquor district (Special)
13235	Amends § 3.04.050(F), property taxes (3.04)
13236	Grants special permit SP-97-03 (Special)
13237	Liquor district established (Special)
13238	Designates Reinvestment Zone "R" (Special)
13239	Designates Reinvestment Zone "S" (Special)
13240	Rezone (Special)
13241	Release zoning conditions for property rezoned in Ord. 5193 (Special)
13242	Authorizes mayor to sign roadway easement (Special)
13243	Liquor district established (Special)
13244	Liquor district established (Special)
13245	Amends Ord. 8064, classification and compensation plan (Special)
13246	Bond issuance (Special)
13247	Amends Ord. 5155, liquor district (Special)
13248	Amends Ord. 12894, liquor district (Special)
13249	Rezone (Special)
13250	Rezone (Special)
13251	Designates Reinvestment Zone "T" (Special)
13252	Amends Ord. 8064, classification and compensation plan (Special)
13253	Amends Ord. 8064, classification and compensation plan (Special)
13254	Amends Ord. 8064, classification and compensation plan (Special)
13255	Grants special privilege to temporarily close portion of road (Special)
13256	Grants special privilege to temporarily close portion of roads (Special)
13257	Liquor district established (Special)
13258	Amends Ord. 11644, liquor district (Special)
13259	Liquor district established (Special)
13260	Amends Ord. 5196, liquor district (Special)
13261	Permits use of portion of Eastwood Park on 7-26-97 (Special)
13262	Amends § 12.88.030, vehicles and traffic (12.88)
13263	Rezone (Special)
13264	Grants special permit SP-97-08 (Special)
13265	Grants special permit SP-97-06 (Special)
13266	Grants special privilege to temporarily close portions of public rights-of-way (Special)
13267	Amends Ord. 8064, classification and compensation plan (Special)

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13268	Amends Ord. 8064, classification and compensation plan (Special)
13269	Authorizes mayor to execute roadway easement (Special)
13270	Liquor district established (Special)
13271	Liquor district established (Special)
13272	Amends Ord. 12919, interlocal license agreement with the community college (Special)
13273	Permits use of Hugo Meyer Field and portion of Washington Park by the League of United Latin American Citizens Council No. 132 (Special)
13274	Rezone (Special)
13275	Adds §§ 20.02.619, 20.02.619.1 and 20.02.619.2; amends § 20.08.190, zoning (Repealed by 16653)
13276	Adds § 12.88.150(k)(3)(n) and (o), vehicles and traffic (12.88)
13277	Amends § 12.88.150(K)(2)(b), vehicles and traffic (12.88)
13278	Amends § 12.44.180(9), stopping, standing and parking (12.44)
13279	Amends Ord. 8065, rules and regulations of the civil service commission (Special)
13280	Liquor district established (Special)
13281	Liquor district established (Special)
13282	Amends Ord. 8064,, classification and compensation plan (Special)
13283	Amends Ord. 8064, classification and compensation plan (Special)
13284	Amends Ord. 8064, classification and compensation plan (Special)
13285	Amends Ord. 8064, classification and compensation plan (Special)
13286	Approves assignment of special privilege granted by Ords. 11125 and 11921 (Special)
13287	Easement vacation (Special)
13288	Amends Ord. 5924, liquor district (Special)
13289	Liquor district established (Special)
13290	Permits Tarde De Oro to use Memorial Park Reserve Area (Special)
13291	Permits Air Systems Components to use portion of Shawver Park (Special)
13292	Authorizes mayor to sign quitclaim deed to vacate easement (Special)
13293	Grants special privilege to permit encroachment of an awning onto a portion of the public right-of-way (Special)
13294	Permit KHEY Y96 Radio to use portion of Crestmont Park and Hacienda Heights Park (Special)
13295	Adds §§ 6.04.020(F), (G) and 6.04.045; amends § 6.04.040(E), (G), (I), 6.04.060(C)(2), 6.12.110(D), (F)(1), (H) and (J), 6.16.090(D), 6.16.100(B)—(D), 6.16.110(C)—(E), 6.16.180(A), 6.16.320(B), 6.20.120, 6.28.130, 6.32.110(A), 6.34.100(A); repeals §§ 6.04.040(J) and (K), 6.04.060(C)(3) and (4), 6.12.120, 6.32.110(B) and (C), 6.34.100(B) and (C), vehicles for hire (6.04, 6.12, 6.16, 6.20, 6.28, 6.32, 6.34)
13296	Rezone (Special)
13297	Rezone (Special)
13298	Grants special permit SP-97-02 (Special)

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13299	Liquor district established (Special)
13300	Amends Ord. 10017, liquor district (Special)
13301	Amends § 12.88.150(F), vehicles and traffic (12.88)
13302	Amends § 12.88.150(F), vehicles and traffic (12.88)
13303	Grants special privilege for long distance telecommunications system (Special)
13304	Grants special permit SP-97-09 (Special)
13305	Grants special permit SP-97-11 (Special)
13306	Grants special permit SP-97-07 (Special)
13307	Rezone (Special)
13308	Rezone (Special)
13309	Rezone (Special)
13310	Amends Ord. 8064, classification and compensation plan (Special)
13311	Amends Ord. 8064, classification and compensation plan (Special)
13312	Amends Ord. 8064, classification and compensation plan (Special)
13313	Amends Ord. 8064, classification and compensation plan (Special)
13314	Amends Ord. 8064, classification and compensation plan (Special)
13315	Amends Ch. 18.16, electrical code; repeals Ord. 12684 (18.16)
13316	Amends § 18.02.103.1.1, administrative code (18.02)
13317	Amends § 15.08.120(B)(2)(i), (j) and (D)(2)(k), street rentals (15.08)
13318	Adds subsection (L) to § 20.66.130 and amends subsection (I), zoning (Repealed by 16304)
13319	Grants special permit SP-97-14 (Special)
13320	Rezone (Special)
13321	Liquor district established (Special)
13322	Liquor district established (Special)
13323	Liquor district established (Special)
13324	Grants special privilege to permit encroachment of awning onto portion of public right-of-way (Special)
13325	Authorizes city to enter a license and special privilege agreement to temporarily close portions of the public right-of-way (Special)
13326	Adds §§ 13.40.100, 13.40.110 and 13.40.120, graffiti abatement (13.40)
13327	Calls election for car rental tax (Special)
13328	Grants special permit SP-97-16 (Special)
13329	Grants special permit SP-97-1y (Special)
13330	Rezone (Special)
13331	Rezone (Special)
13332	Amends Ord. 5106, liquor district (Special)
13333	Amends Ord. 8064, classification and compensation plan (Special)
13334	Grants franchise to Med-Line Ambulance Service (Special)
13335	Permits use of portion of Tom Lea Park (Special)
13336	Permits use of Memorial Park Reserve Area (Special)
13337	1997 tax levy (Special)
13338	Authorizes use of senior citizen center for bingo (Special)
13339	Authorizes sale of property (Special)
13340	Rezone (Special)

Ordinance Number	
13341	Adds § 2.16.050(4)(B)(13), zoning board of adjustment (Repealed by 16888)
13342	Adds § 15.08.120(D)(2)(k)[(l)], (3)(d) and (3)(e), street rentals (15.08)
13343	Approves assignment of special privilege granted by Ord. 9212 (Special)
13344	Amends Ord. 12674, liquor district (Special)
13345	Amends Ord. 8064, classification and compensation plan (Special)
13346	Amends Ord. 8064, classification and compensation plan (Special)
13347	Amends Ord. 8064, classification and compensation plan (Special)
13348	Street and alley vacation (Special)
13349	Bond issuance (Special)
13350	Grants special privilege to temporarily close streets and alleys for downtown festival (Special)
13351	Grants special privilege to permit long distance telecommunications system (Special)
13352	Liquor district established (Special)
13353	Liquor district established (Special)
13354	Liquor district established (Special)
13355	Amends § 18.02.105.4.1, administrative code (18.02)
13356	Repeals and replaces Ch. 9.52, fire prevention code; repeals Ords. 8860, 9272, [9273], 9979, 10241, 10255, 10479, 10952, 11006, 11563, 11702, 12914, 12722 (9.52)
13357	Grants special privilege to temporarily close a portion of streets (Special)
13358	Amends Ord. 6177, liquor district (Special)
13359	Amends Ord. 4857, liquor district (Special)
13360	Amends Ord. 8065, rules and regulations of the civil service commission (Special)
13361	Amends Ord. 8065, rules and regulations of the civil service commission (Special)
13362	Amends Ord. 8064, classification and compensation plan (Special)
13363	Rezone (Special)
13364	Rezone (Special)
13365	Rezone (Special)
13366	Rezone (Special)
13367	Rezone (Special)
13368	Rezone (Special)
13369	Amends § 12.88.030, vehicles and traffic (12.88)
13370	Amends Ord. 12553, liquor district (Special)
13371	Amends Ord. 8062, liquor district (Special)
13372	Authorizes mayor to execute a quitclaim deed for tax resale (Special)
13373	Grants special permit SP-97-12 (Special)
13374	Authorizes lease (Special)
13375	Rezone (Special)
13376	Rezone (Special)
13377	Rezone (Special)
13378	Amends Ord. 3899, Liquor District No. 107 (Special)
13379	Permits United Veterans Organization to use portion of San Jacinto Plaza (Special)
13380	Amends Ord. 8064, classification and compensation plan (Special)
13381	Amends Ord. 8064, classification and compensation plan (Special)

Ordinance Number	
13382	Amends Ord. 8064, classification and compensation plan (Special)
13383	Creates an additional district for the sale of alcoholic beverages (Special)
13384	Amends Ord. 5304, Liquor District No. 321 (Special)
13385	Creates an additional district for the sale of alcoholic beverages (Special)
13386	Repeals Ord. 7233 (Repealer)
13387	Permits Amigo Kidney Foundation to use a portion of Marwood Park (Special)
13388	Grants special privilege to Ysleta Independent School District (Rescinded by 16169)
13389	Street vacation (Special)
13390	Right-of-way vacation (Special)
13391	Rezone (Special)
13392	Rezone (Special)
13393	Rezone (Special)
13394	Bond issuance (Special)
13395	Grants special permit (Special)
13396	Amends Ord. 7277, Liquor District No. 552 (Special)
13397	Repeals Ord. 11807 (Repealer)
13398	Amends Ord. 8064, classification and compensation plan (Special)
13399	Amends Ord. 8064, classification and compensation plan (Special)
13400	Amends Ord. 8064, classification and compensation plan (Special)
13401	Amends Ord. 8064, classification and compensation plan (Special)
13402	Amends Ord. 8064, classification and compensation plan (Special)
13403	Rezone (Special)
13404	Creates an additional district for the sale of alcoholic beverages (Special)
13405	Creates an additional district for the sale of alcoholic beverages (Special)
13406	Grants special permit (Special)
13407	Amends § 9.84.010, miscellaneous health regulations (9.84)
13408	Rezone (Special)
13409	Rezone (Special)
13410	Rezone (Special)
13411	Rezone (Special)
13412	Rezone (Special)
13413	Amends Ord. 4519, Liquor District No. 265 (Special)
13414	Creates an additional district for the sale of alcoholic beverages (Special)
13415	Amends Ord. 1644, Liquor District No. 50 (Special)
13416	Adds § 2.16.050(S), zoning board of adjustment (Repealed by 16888)
13417	Grants special privilege (Special)
13418	Repeals Ord. 8018 (Repealer)
13419	Amends Ords. 12185, 12186, 12187, 12188, 12216, 12189, 12190, 12191, 12195, 12198, 12200, 12201, 12202, 12767, 12296 and 12326, special privileges to operate food-vending concessions in downtown area (Special)
13420	Alley vacation (Special)
13421	Amends Ord. 3120, Liquor District No. 155 (Special)
13422	Repeals Ord. 9361 (Repealer)
13423	Repeals Ord. 9155 (Repealer)
13424	Repeals Ord. 8924 (Repealer)
13425	Grants franchise renewal (Special)
13426	Rezone (Special)
13427	Rezone (Special)

Ordinance Number	
13428	Authorizes mayor to execute a quitclaim deed (Special)
13429	Authorizes mayor to sign a correction deed without warranty (Special)
13430	Alley vacation (Special)
13431	Adds Ch. 3.20, motor vehicle rental tax (3.40)
13432	Grants special permit (Special)
13433	Grants special permit (Special)
13434	Grants special privilege (Special)
13435	Grants special privilege (Special)
13436	Creates an additional district for the sale of alcoholic beverages (Special)
13437	Repeals Ord. 9679 (Repealer)
13438	Repeals Ord. 9742 (Repealer)
13439	Repeals Ord. 10753 (Repealer)
13440	Amends Ord. 11679, bus bench franchise (Special)
13441	Creates an additional district for the sale of alcoholic beverages (Special)
13442	Grants special permit (Special)
13443	Grants special permit (Special)
13444	Rezone (Special)
13445	Rezone (Special)
13446	Rezone (Special)
13447	Rezone (Special)
13448	Rezone (Special)
13449	Repeals Ord. 11350 (Repealer)
13450	Amends Ord. 6822, Liquor District No. 155 (Special)
13451	Amends Ord. 11999, Liquor District No. 155 (Special)
13452	Amends Ord. 11527, Liquor District No. 155 (Special)
13453	Amends Ord. 8064, classification and compensation plan (Special)
13454	Amends Ord. 8064, classification and compensation plan (Special)
13455	Amends Ord. 8064, classification and compensation plan (Special)
13456	Amends Ord. 8064, classification and compensation plan (Special)
13457	Amends Ord. 8064, classification and compensation plan (Special)
13458	Amends Ord. 8064, classification and compensation plan (Special)
13459	Amends Ord. 8064, classification and compensation plan (Special)
13460	Amends Ord. 8064, classification and compensation plan (Special)
13461	Permits Reverence for Life Ministry of the Catholic Diocese to use a portion of Houston Park on January 18, 1998 (Special)
13462	Designates reinvestment zone "U" (Special)
13463	Designates reinvestment zone "V" (Special)
13464	Amends Table 9.04.420(A), solid waste management (9.04)
13465	Amends § 2.16.050, zoning board of adjustment (Repealed by 16888)
13466	Amends § 12.88.030, vehicles and traffic—schedules (12.88)
13467	Creates an additional district for the sale of alcoholic beverages (Special)
13468	Creates an additional district for the sale of alcoholic beverages (Special)
13469	Creates an additional district for the sale of alcoholic beverages (Special)
13470	Creates an additional district for the sale of alcoholic beverages (Special)
13471	Amends Ord. 2977, Liquor District No. 155 (Special)

Ordinance Number	
13472	Authorizes twelve travelers review committee (Repealed by 16660)
13473	Amends §§ 20.36.020(7), 20.38.020(11) and 20.40.020(14), zoning (Repealed by 16653)
13474	Creates an additional district for the sale of alcoholic beverages (Special)
13475	Amends Ord. 8064, classification and compensation plan (Special)
13476	Right-of-way vacation (Special)
13477	Adds Ch. 15.20, stormwater management (15.20)
13478	Creates an additional district for the sale of alcoholic beverages (Special)
13479	Amends Ord. 5341, Liquor District No. 327 (Special)
13480	Repeals Ord. 6729 (Repealer)
13481	Amends Ords. 9918, 10482, 10544, 11098 and 11779, stadium lease agreement (Special)
13482	Amends § 2.64.120(J)(3) and (4), city employees' pension fund (2.64)
13483	Amends Ord. 8064, classification and compensation plan (Special)
13484	Extends the term of Ord. 13191, grants use of public rights-of-way (Special)
13485	Rezone (Special)
13486	Rezone (Special)
13487	Rezone (Special)
13488	Rezone (Special)
13489	Rezone (Special)
13490	Rezone (Special)
13491	Amends Ord. 9469, Liquor District No. 762 (Special)
13492	Creates liquor district (Special)
13493	Permits Pentecostal Christian Church Worldwide Missionary Movement to use Memorial Park reserve area (Special)
13494	Permits The Humane Society to use portion of Eastwood Park (Special)
13495	Permits BPO Elks Lodge No. 187 to use portion of Marty Robbins Park (Special)
13496	Amends Ords. 11521 and 11859, small business advisory board (Special)
13497	Authorizes mayor to sign quitclaim deed (Special)
13498	Authorizes mayor to sign special warranty deed (Special)
13499	Amends § 12.88.030, vehicles and traffic (12.88)
13500	Amends § 12.88.030, vehicles and traffic (12.88)
13501	Amends Ord. 8064, telecommunications technician (Special)
13502	Amends Ord. 8064, architect associate I (Special)
13503	Adds § 9.04.430 [9.04.365], solid waste management (Expired)
13504	Grants special permit (Special)
13505	Rezone (Special)
13506	Rezone (Special)
13507	Amends Ord. 852, Liquor District No. 852 (Special)
13508	Amends Ord. 9032, Liquor District No. 731 (Special)
13509	Permits J.C. is Lord Ministries to use a portion of Eastwood Park (Special)
13510	Authorizes lease of caretaker's residence (Special)

Ordinance Number	
13511	Grants special privilege to encroach onto portion of right-of-way (Repealed by 13972)
13512	Grants special privilege to encroach onto portion of right-of-way (Repealed by 13972)
13513	Grants special privilege to encroach onto portion of right-of-way (Repealed by 13972)
13514	Grants special privilege to encroach onto portion of right-of-way (Repealed by 13972)

13515 Grants special privilege to encroach onto portion of right-of-way (Repealed by 13972)
13516 Grants special privilege to encroach onto portion of right-of-way (Repealed by 13972)
13517 Grants special privilege to encroach onto portion of right-of-way (Repealed by 13972)
13518 Grants special privilege to encroach onto portion of right-of-way (Repealed by 13972)
13519 Grants special privilege to encroach onto portion of right-of-way (Repealed by 13972)
13520 Grants special privilege to encroach onto portion of right-of-way (Repealed by 13972)
13521 Grants special privilege to encroach onto portion of right-of-way (Repealed by 13972)
13522 Grants special privilege to encroach onto portion of right-of-way (Repealed by 13972)
13523 Grants special privilege to encroach onto portion of right-of-way (Repealed by 13972)
13524 Grants special privilege to encroach onto portion of right-of-way (Repealed by 13972)
13525 Grants special privilege to encroach onto portion of right-of-way (Repealed by 13972)
13526 Grants special privilege to encroach onto portion of right-of-way (Repealed by 13972)
13527 Grants special privilege to encroach onto portion of right-of-way (Repealed by 13972)
13528 Grants special privilege to encroach onto portion of right-of-way (Repealed by 13972)
13529 Grants special privilege to encroach onto portion of right-of-way (Repealed by 13972)
13530 Grants special privilege to encroach onto portion of right-of-way (Repealed by 13972)
13531 Rezone (Special)
13532 Special election (Special)
13533 Repeals Ord. 4655 (Repealer)
13534 Repeals Ord. 10537 (Repealer)
13535 Repeals Ord. 8761 (Repealer)
13536 Repeals Ord. 9283 (Repealer)
13537 Creates liquor district (Special)
13538 Authorizes the mayor to sign quitclaim deed (Special)
13539 Authorizes the mayor to sign a deed without warranty (Special)
13540 Amends § 12.44.180(B)(28)(c), stopping, standing and parking generally (12.44)
13541 Repeals Ord. 7120, 7834, 10589 and 11469 (Repealer)
13542 Provides issuance, sale and delivery of tax certificates (Special)
13543 Provides issuance, sale and delivery of tax certificates and revenue (Special)
13544 Bond issuance (Special)
13545 Repeals Ord. 7281 (Repealer)
13546 Repeals Ord. 2199 (Repealer)
13547 Repeals Ord. 2354 (Repealer)
13548 Repeals Ord. 5924 (Repealer)
13549 Creates liquor district (Special)
13550 Adds § 12.88.150(K)(3)(p), vehicles and traffic (12.88)
13551 Amends § 12.88.150(I), speed limits (12.88)
13552 Amends § 12.88.150(H), speed limits (12.88)
13553 Amends § 12.88.150(H), speed limits (12.88)
13554 Amends § 12.88.150(H), speed limits (12.88)
13555 Amends § 12.88.150(H), speed limits (12.88)
13556 Amends § 12.88.150(J), speed limits (12.88)
13557 Amends § 12.88.150(G), speed limits (12.88)

13558	Amends § 12.88.150(H), speed limits (12.88)
13559	Amends Ord. 11679, grants franchise to Busstop Billboards (Special)
13560	Grants special permit SP-97-29 (Special)
13561	Amends §§ 12.40.090 and 12.88.080, vehicles and traffic; repeals §§ 12.88.090 and 12.88.100 (12.40, 12.88)
13562	Creates liquor district (Special)
13563	Creates liquor district (Special)
13564	Amends 7.16.020(D), impoundment (7.16)
13565	Repeals Ord. 6008 (Repealer)
13566	Repeals Ord. 8000 (Repealer)
13567	Repeals Ord. 10019 (Repealer)
13568	Repeals Ord. 7675 (Repealer)
13569	Repeals Ord. 6785 (Repealer)
13570	Repeals Ord. 6766 (Repealer)
13571	Repeals Ord. 6663 (Repealer)
13572	Repeals Ord. 1698 (Repealer)
13573	Repeals Ord. 9468 (Repealer)
13574	Repeals Ord. 3178 (Repealer)
13575	Repeals Ord. 11715 (Repealer)
13576	Repeals Ord. 12583 (Repealer)
13577	Repeals Ord. 11361 (Repealer)
13578	Repeals Ord. 5701 (Repealer)
13579	Repeals Ord. 4717 (Repealer)
13580	Repeals Ord. 10603 (Repealer)
13581	Repeals Ord. 2366 (Repealer)
13582	Amends Ord. 7745, Liquor District No. 607 (Special)
13583	Amends Ord. 7181, Liquor District No. 540 (Special)
13584	Amends Ord. 11397, Liquor District No. 870 (Special)
13585	Amends Ord. 8491, Liquor District No. 870 (Special)
13586	Amends Ord. 8064, classification and compensation plan (Special)
13587	Amends Ord. 8064, classification and compensation plan (Special)
13588	Amends Ord. 8064, classification and compensation plan (Special)
13589	Amends Ord. 8064, classification and compensation plan (Special)
13590	Amends Ord. 8064, classification and compensation plan (Special)
13591	Grants special permit SP-98-01 (Special)
13592	Corrects Ord. 13487, rezone (Special)
13593	Rezone (Special)
13594	Amends Ord. 13511, 13512, 13513, 13514, 13515, 13516, 13517, 13518, 13519, 13520, 13521, 13522, 13523, 13524, 13525, 13526, 13527, 13528, 13529, 13530, special privileges to operate food-vending concession in downtown area (Special)
13595	Rezone (Special)
13596	Grants special permit SP-98-02 (Special)
13597	Amends Ord. 11716, Liquor District No. 891 (Special)
13598	Amends Ord. 12686, Liquor District No. 944 (Special)
13599	Repeals Ord. 9637 (Repealer)
13600	Amends Ord. 8064, classification and compensation plan (Special)
13601	Amends Ord. 13511, 13512, 13513, 13514, 13515, 13518, 13520, 13524, 13525, 13526, 13527, 13528, 13529, 13530, special privileges to operate food-vending concession in downtown area (Special)
13602	Amends Ord. 12284, Liquor District No. 922 (Special)
13603	Amends Ord. 8064, classification and compensation plan (Special)
13604	Amends Ord. 8064, classification and compensation plan (Special)
13605	Creates liquor district (Special)
13606	Creates liquor district (Special)
13607	Amends Ord. 10336, bond issuance (Special)
13608	Creates liquor district (Special)
13609	Creates liquor district (Special)
13610	Amends Ord. 2345, Liquor District No. 85 (Special)
13611	Creates liquor district (Special)
13612	Amends Ord. 8464, grants use of fiber optic transmission (Special)
13613	Street vacation (Special)

Ordinance Number	
13614	Amends § 20.64.175, off-street parking and loading requirements (Repealed by 16653)
13615	Rezone (Special)
13616	Amends §§ 2.16.030 and 2.16.050(F), zoning board of adjustment (Repealed by 16888)
13617	Permits use of portion of Tom Lea Park (Special)
13618	Creates liquor district (Special)
13619	Creates liquor district (Special)
13620	Amends Ord. 5902, Liquor District No. 410 (Special)
13621	Amends Ord. 6886, Liquor District No. 518 (Special)
13622	Creates liquor district (Special)
13623	Grants special privilege to encroach onto portion of right-of-way (Repealed by 13972)
13624	Grants special privilege to encroach onto portion of right-of-way (Repealed by 13972)
13625	Grants special privilege to encroach onto portion of right-of-way (Special)
13626	Grants special privilege to close portion of certain street (Special)
13627	Authorizes the mayor to execute a quitclaim deed (Special)
13628	Street vacation (Special)
13629	Creates the Fair Housing Task Force (Special)
13630	Rezone (Special)
13631	Rezone (Special)
13632	Rezone (Special)
13633	Grants special permit SP 97-10 (Special)
13634	Amends Ord. 7708, liquor district (Special)
13635	Authorizes deed for conveyance of land (Special)
13636	Amends Ord. 8064, classification and compensation plan (Special)
13637	Grants special privilege (Special)
13638	Grants special permit SP 98-06 (Special)
13639	Rezone (Special)
13640	Repeals Ord. 6891, liquor district (Special)
13641	Repeals Ord. 4399, liquor district (Special)
13642	Repeals Ord. 11113, liquor district (Special)
13643	Creates additional liquor district (Special)
13644	Amends Ord. 4326, liquor district (Special)
13645	Grants special permit (Special)
13646	Authorized quitclaim deed (Special)
13647	Amends Ord. 9699, traveling procedures (Repealed by 16756)
13648	Amends §§ 19.04.040(C) and 19.16.020(D), subdivisions (19.04, 19.16)
13649	Street vacation (Special)
13650	Rezone (Special)
13651	Rezone (Special)
13652	Amends §§ 20.02.564 and 20.64.140, zoning (Repealed by 16653)
13653	Repeals Ord. 11949, liquor district (Special)
13654	Repeals Ord. 2147, liquor district (Special)
13655	Repeals Ord. 7057, liquor district (Special)
13656	Repeals Ord. 3135, liquor district (Special)
13657	Amends Ord. 8064, classification and compensation plan (Special)
13658	Amends Ord. 8064, classification and compensation plan (Special)
13659	Amends Ord. 8064, classification and compensation plan (Special)
13660	Creates liquor district (Special)

Ordinance Number	
13661	Rezone (Special)
13662	Creates liquor district (Special)
13663	Creates liquor district (Special)
13664	Creates liquor district (Special)
13665	Grants special privilege (Special)
13666	Grants special permit SP 98-04 (Special)
13667	Grants special permit SP 98-05 (Special)
13668	Rezone (Special)
13669	Rezone (Special)
13670	Amends Ord. 12756, liquor district (Special)
13671	Authorizes quitclaim deed (Special)
13672	Authorizes deed for conveyance of right-of-way (Special)
13673	Authorizes deed for conveyance of land (Special)
13674	Rezone (Special)
13675	Grants special permit SP 98-07 (Special)
13676	Grants special permit SP 98-08 (Special)
13677	Repeals Ord. 7516, liquor district (Special)
13678	Repeals Ord. 9187, liquor district (Special)
13679	Repeals Ord. 8988, liquor district (Special)
13680	Repeals Ord. 6100, liquor district (Special)
13681	Repeals Ord. 12993, liquor district (Special)
13682	Repeals Ord. 7609, liquor district (Special)
13683	Creates liquor district (Special)
13684	Amends Ord. 3326, liquor district (Special)
13685	Amends § 12.88.030(290), schedules (12.88)
13686	Amends § 12.88.010, schedules (12.88)
13687	Amends Ord. 8064, classification and compensation plan (Special)
13688	Amends Ord. 8064, classification and compensation plan (Special)
13689	Amends Ord. 8064, classification and compensation plan (Special)
13690	Amends Ord. 8064, classification and compensation plan (Special)
13691	Rezone (Special)
13692	Rezone (Special)
13693	Amends Ord. 3802, liquor district (Special)
13694	Repeals Ord. 6577, liquor district (Special)
13695	Repeals Ord. 11689, liquor district (Special)
13696	Street vacation (Special)
13697	Amends § 12.88.030, schedules (12.88)
13698	Amends § 9.08.010, junked vehicles (9.08)
13699	Grants special privilege (Special)
13700	Amends Ord. 8064, classification and compensation plan (Special)
13701	Amends Ord. 8064, classification and compensation plan (Special)
13702	Amends Ord. 8064, classification and compensation plan (Special)
13703	Amends Ord. 8064, classification and compensation plan (Special)
13704	Amends Ord. 8064, classification and compensation plan (Special)
13705	Amends Ord. 8064, classification and compensation plan (Special)
13706	Amends Ord. 8064, classification and compensation plan (Special)
13707	Amends Ord. 8064, classification and compensation plan (Special)
13708	Amends Ord. 8064, classification and compensation plan (Special)
13709	Amends Ord. 8064, classification and compensation plan (Special)
13710	Street vacation (Special)

Ordinance Number	
13711	Grants special permit SP 97-25 (Special)
13712	Grants special permit SP 98-10 (Special)
13713	Amends § 20.16.040(A), zoning (Repealed by 16653)
13714	Alley vacation (Special)
13715	Amends Ord. 5790, liquor district (Special)
13716	Amends § 2.16.050, zoning board of adjustment (Repealed by 16888)
13717	Rezone (Special)
13718	Easement vacation (Special)
13719	Grants special permit SP 98-09 (Special)
13720	Rezone (Special)
13721	Amends Ord. 5375, liquor district (Special)
13722	Amends Ord. 8064, classification and compensation plan (Special)
13723	Grants special privilege (Special)
13724	Authorizes quitclaim deed (Special)
13725	Authorizes quitclaim deed (Special)
13726	Bond issuance (Special)
13727	Grants special permit SP 98-11 (Special)
13728	Rezone (Special)
13729	Grants special permit SP 97-22 (Special)
13730	Rezone (Special)
13731	Rezone (Special)
13732	Grants special privilege (Special)
13733	Grants special privilege (Special)
13734	Grants special privilege (Special)
13735	Zoning designations (Special)
13736	Permits special use of park (Special)
13737	Permits special use of park (Special)
13738	Amends Ord. 5244, liquor district (Special)
13739	Amends § 12.40.090, size, weight and class restrictions (12.40)
13740	Creates liquor district (Special)
13741	Creates liquor district (Special)
13742	Amends Ord. 2131, liquor district (Special)
13743	Amends Ord. 8064, classification and compensation plan (Special)
13744	Amends Ord. 8064, classification and compensation plan (Special)
13745	Amends Ord. 8064, classification and compensation plan (Special)
13746	Authorizes quitclaim deed (Special)
13747	Adds §§ 2.88.040—2.88.050 and amends §§ 2.88.010—2.88.030, schedules (Repealed by 15693)
13748	Amends Ord. 6092, liquor district No. 440 (Special)
13749	Amends Ord. 9574, liquor district No. 768 (Special)
13750	Authorizes mayor to sign deed without warranty to convey surplus right-of-way back to the original donor (Special)
13751	Amends Ord. 10968, liquor district No. 851 (Special)
13752	Amends Appendix A of Ch. 14.24, commercial air carriers rates and charges (14.24)
13753	Grants nonexclusive franchise to Joe Olivia for placing benches at bus stops (Repealed by 16796)
13754	Amends § 13.24.200, city park and recreation areas (Repealed by 14020)
13755	Grants special privilege (Special)
13756	Rezone (Special)
13757	Rezone (Special)
13758	Amends Ord. 13443, special permit (Special)

Ordinance Number	
13759	Creates liquor district No. 1033 (Special)
13760	Amends Ord. 7891, liquor district No. 625 (Special)
13761	Creates liquor district No. 1036 (Special)
13762	Amends § 3.40.090, motor vehicle rental tax (3.40)
13763	Permits League of United Latin American Citizens Council to use Hugo Meyer Field and a portion of Washington Park from August 31, 1998 through September 10, 1998 (Special)
13764	Permits Dr. Gene Finke to use Veterans Park on October 24, 1998 (Special)
13765	Utility easement vacation (Special)
13766	Authorizes mayor to execute quitclaim deed (Special)
13767	Establishes lease with El Paso Scorpions Rugby Club (Special)
13768	Rezone (Special)
13769	Rezone (Special)
13770	Terminates Reinvestment Zone One (Special)
13771	Amends Ord. 10778, liquor district No. 711 (Special)
13772	Creates liquor district No. 1035 (Special)
13773	Creates liquor district No. 1038 (Special)
13774	Amends Ord. 13272, interlocal license agreement (Special)
13775	Street vacation (Special)
13776	Authorizes mayor to sign a warranty deed (Special)
13777	Rezone (Special)
13778	Rezone (Special)
13779	Rezone (Special)
13780	Rezone (Special)
13781	Rezone (Special)
13782	Rezone (Special)
13783	Authorizes lease of Washington Park Senior Citizen Center to Washington Park Senior Citizen Center Bingo Advisory Committee, Inc. (Special)
13784	Authorizes lease of Wellington Chew Senior Citizen Center to Wellington Chew Senior Advisory Committee, Inc. (Special)
13785	Authorizes mayor to sign a warranty deed (Special)
13786	Authorizes mayor to sign a warranty deed (Special)
13787	Amends § 12.80.030, miscellaneous traffic regulations (12.80)
13788	Creates liquor district No. 1030 (Special)
13789	Creates liquor district No. 1037 (Special)
13790	Repeals Ord. 6603, liquor district No. 491 (Special)
13791	Adds §§ 12.78.010(F) and (G), international bridges (12.78)
13792	Grants special permit (Special)
13793	Grants special permit (Special)
13794	Creates liquor district No. 1032 (Special)
13795	Amends Ord. 7585, liquor district No. 585 (Special)
13796	Creates liquor district No. 1034 (Special)
13797	Amends Ord. 7599, liquor district No. 588 (Special)

Ordinance Number	
13798	Amends Ord. 8064, classification and compensation plan (Special)
13799	Amends Ord. 8064, classification and compensation plan (Special)
13800	Amends Ord. 8064, classification and compensation plan (Special)
13801	Amends § 2.88.020(B), architect-engineer committee (Repealed by 15693)
13802	Rezone (Special)
13803	Rezone (Special)
13804	Rezone (Special)
13805	Amends Ord. 8064, classification and compensation plan (Special)
13806	Amends Ord. 13685, prohibited parking (Not codified)
13807	Vacates utility easement (Special)
13808	Grants special privilege (Special)
13809	Grants special privilege (Special)
13810	Adds § 12.88.150(H)(31), vehicles and traffic—schedules (12.88)
13811	Permits Curt Stofflet and Maria Montes to use a portion of Tom Lea (Upper) Park (Special)
13812	Authorizes lease of South El Paso Senior Citizen Center to South El Paso Senior Citizen Center Advisory Committee (Special)
13813	Amends Ord. 8064, classification and compensation plan (Special)
13814	Amends Ord. 8064, classification and compensation plan (Special)
13815	Amends Ord. 8065, rules and regulations of the civil service commission (Special)
13816	Amends Ord. 8065, rules and regulations of the civil service commission (Special)
13817	Creates the metropolitan planning organization office (Repealed by 14231)
13818	Amends Ord. 13717, easement vacation (Special)
13819	Grants special permit (Special)
13820	Grants special permit (Special)
13821	1998 tax levy (Special)
13822	Creates liquor district No. 1041 (Special)
13823	Adds § 12.88.150(S), vehicles and traffic—schedules (Expired)
13824	Amends § 12.88.140, vehicles and traffic—schedules (12.88)
13825	Authorizes mayor to sign a special warranty deed (Special)
13826	Permits KTSM-TV Channel 9 to use a portion of Houston Park (Special)
13827	Amends Ord. 8064, classification and compensation plan (Special)
13828	Vacates utility easement (Special)
13829	Rezone (Special)
13830	Amends §§ 20.02.752, 20.18.020, 20.18.080, 20.18.090 and 20.18.100, 20.18.120(C) and (D) and 20.18.130(B) and repeals §§ 20.18.150—20.18.170, zoning (Repealed by 16653)

Ordinance Number	
13831	Rezone (Special)
13832	Grants special permit (Special)
13833	Grants special privilege (Special)
13834	Street vacation (Special)
13835	Amends Ord. 8976, franchise grant to Paragon Communications (Special)
13836	Creates liquor district No. 1039 (Special)
13837	Amends § 12.44.100, stopping, standing and parking generally (12.44)
13838	Adds § 12.88.150(F)(73), vehicles and traffic—schedules (12.88)
13839	Amends Ord. 6357, liquor district No. 471 (Special)
13840	Amends Ord. 8923, liquor district No. 723 (Special)
13841	Amends Ord. 12923, liquor district No. 955 (Special)
13842	Bond issuance (Special)
13843	Bond issuance (Special)
13844	Amends Ord. 9591, rezone (Special)
13845	Rezone (Special)
13846	Rezone (Special)
13847	Rezone (Special)
13848	Repeals Ord. 5560, liquor district No. 372 (Special)
13849	Creates liquor district No. 1040 (Special)
13850	Permits Todd Tudor to use a portion of Suffolk Park (Special)
13851	Amends Ord. 13388, grant of special privilege (Special)
13852	Creates liquor district No. 1043 (Special)
13853	Creates liquor district No. 1044 (Special)
13854	Permits Dame La Mano Crisis Pregnancy Center to use a portion of Memorial Park baseball field (Special)
13855	Repeals Ord. 12048, liquor district No. 908 (Special)
13856	Creates additional liquor district (Special)
13857	Grants franchise to Otto H. Maser, Jr. (Repealed by 16795)
13858	Authorizes mayor to sign license agreement between city and Eller Media Company (Special)
13859	Amends Ord. 8064, classification and compensation plan (Special)
13860	Permits United American Veterans Organization to use portion of San Jacinto Plaza Park on November 7, 1998 (Special)
13861	Alley vacation (Special)
13862	Authorizes mayor to execute quitclaim deed (Special)
13863	Grants special privilege (Special)
13864	Amends Ord. 13608, liquor district No. 1018 (Special)
13865	Repeals Ord. 8428, liquor district No. 684 (Special)
13866	Permits Yvonne Davis to use portion of Falcon Hills Park on November 15, 1998 (Special)
13867	Amends Ord. 9954, liquor district No. 798 (Special)
13868	Amends Ords. 12525, 11053 and 9579, liquor district No. 770 (Special)
13869	Repeals Ord. 7247, El Paso midwifery advisory commission (Special)
13870	Utility easement vacation (Special)
13871	Rezone (Special)
13872	Rezone (Special)
13873	Rezone (Special)
13874	Rezone (Special)
13875	Grants special permit SP 98-16 (Special)

Ordinance Number	
13876	Amends Ord. 2167, liquor district No. 67 (Special)
13877	Creates liquor district No. 1047 (Special)
13878	Creates liquor district No. 1048 (Special)
13879	Amends Ord. 9696, youth services advisory board (Special)
13880	Adds § 2.92.052; amends §§ 2.92.010—2.92.040, 2.92.060 and 2.92.070, ethics review commission (2.92)
13881	Amends Ord. 8064, classification and compensation plan (Special)
13882	Amends Ord. 8064, classification and compensation plan (Special)
13883	Grants special privilege (Special)
13884	Rezone (Special)
13885	Creates liquor district No. 1050 (Special)
13886	Creates liquor district No. 1051 (Special)
13887	Amends Ord. 12693, liquor district No. 946 (Special)
13888	Adds § 12.88.150(D)(4), speed limits (12.88)
13889	Permits Temple Mt. Sinai to use portion of Mission Hills Park on December 4, 1998 (Special)
13890	Permits MERCK Pharmaceutical to use portion of Tom Lea (Upper) Park on December 5, 1998 (Special)
13891	Grants special privilege (Special)
13892	Amends Ord. 12352, rezone (Special)
13893	Rezone (Special)
13894	Rezone (Special)
13895	Grants special permit SP 98-17 (Special)
13896	Amends Ord. 12133, liquor district No. 910 (Special)
13897	Amends Ord. 8064, classification and compensation plan (Special)
13898	Amends Ord. 8064, classification and compensation plan (Special)
13899	Amends Ord. 8064, classification and compensation plan (Special)
13900	Amends Ord. 8064, classification and compensation plan (Special)
13901	Amends Ord. 8064, classification and compensation plan (Special)
13902	Amends Ord. 8064, classification and compensation plan (Special)
13903	Amends Ord. 8064, classification and compensation plan (Special)
13904	Amends §§ 9.52.060 and 9.52.160, fire prevention code (9.52)
13905	Amends Ord. 8218, liquor district No. 662 (Special)
13906	Permits Reverence for Life Ministry of the Catholic Diocese of El Paso to use portion of Houston Park on January 17, 1999 (Special)
13907	Adds §§ 19.04.200, 19.12.085 and 19.08.080(D); amends §§ 19.04.040, 19.04.050, 19.04.110, 19.04.160, 19.08.010, 19.08.030, 19.08.050— 19.08.080, 19.08.100, 19.12.020, 19.12.030, 19.12.060, 19.12.080, 19.12.090, 19.12.100, 19.16.020, 19.16.040, 19.16.080, 19.16.110, 19.24.020, 19.24.030, 19.32.010, 19.36.010, 19.44.010, 19.44.050 and 19.44.060, subdivisions, and subdivision improvement design standards charts (19.04, 19.08. 19.12, 19.16, 19.24, 19.32, 19.36, 19.44)
13908	Amends Ord. 6828, liquor district No. 511 (Special)

Ordinance Number	
13909	Amends Ord. 12590, liquor district No. 936 (Special)
13910	Revises emergency medical services system fee schedule (Special)
13911	Alley vacation (Special)
13912	Authorizes mayor to execute *quitclaim deed* (Special)
13913	Grants special permit SP 98-18 (Special)
13914	Grants special permit SP 98-19 (Special)
13915	Adds § 12.88.150(T), speed limits (12.88)
13916	Utility easement vacation (Special)
13917	Rezone (Special)
13918	Creates liquor district No. 1054 (Special)
13919	Creates liquor district No. 1046 (Special)
13920	Deletes Ch. 5.64, motion picture *projectionists* (Repealer)
13921	Amends Ord. 8064, classification and compensation plan (Special)
13922	Amends Ord. 8064, classification and compensation plan (Special)
13923	Amends Ord. 8064, classification and compensation plan (Special)
13924	Amends Ord. 8064, classification and compensation plan (Special)
13925	Amends Ord. 8064, classification and compensation plan (Special)
13926	Amends Ord. 2899, liquor district No. 129 (Special)
13927	Amends Ord. 4275, liquor district 252 (Special)
13928	Creates liquor district 1053 (Special)
13929	Amends Ord. 8528, liquor district 695 (Special)
13930	Permits El Paso Golden Gloves to use Carolina Recreation Center from February 12, 1999 through February 14, 1999 (Special)
13931	Rezone (Special)
13932	Bond issuance (Special)
13933	Amends § 20.66.310, zoning (Repealed by 16653)
13934	Grants easement (Special)
13935	Amends Ord. 12560, liquor district No. 933 (Special)
13936	Amends Ord. 5939, liquor district No. 418 (Special)
13937	Amends Ord. 12712, liquor district No. 947 (Special)
13938	Creates liquor district No. 1058 (Special)
13939	Grants special privilege (Special)
13940	Amends Ord. 7617, rezone (Special)
13941	Creates liquor district No. 1056 (Special)
13942	Creates liquor district No. 1052 (Special)
13943	Creates liquor district No. 455 (Special)
13944	Creates liquor district No. 1057 (Special)
13945	Amends Ord. 8064, classification and compensation plan (Not codified)
13946	Amends Ord. 8064, classification and compensation plan (Not codified)
13947	Rezone (Special)
13948	Creates liquor district No. 1055 (Special)
13949	1999 general election (Special)
13950	Grants franchise to Sunwest Ambulance (Special)

Ordinance Number	
13951	Amends Ord. 8064, classification and compensation plan (Not codified)
13952	Rezone (Special)
13953	Grants special permit (Special)
13954	Repeals Ord. 12888, special privilege (Special)
13955	Creates liquor district No. 1059 (Special)
13956	Replaces "deputy director for building services" with "deputy director for engineering" (13.04, 13.08, 13.12, 18.02, 18.44, 19.04, 19.08, 19.12, 19.16, 19.20, 19.28, 19.32)
13957	Grants special privilege (Special)
13958	Amends Ord. 13388 and 13851, special privilege (Special)
13959	Repeals Ord. 5492, liquor district No. 364 (Special)
13960	Repeals Ord. 13226, liquor district No. 975 (Special)
13961	Repeals Ord. 3017, liquor district No. 142 (Special)
13962	Creates liquor district No. 1063 (Special)
13963	Special warranty deed (Special)
13964	Permits Humane Society to use portion of park (Special)
13965	Amends Ord. 8064, classification and compensation plan (Special)
13966	Amends Ord. 8064, classification and compensation plan (Special)
13967	Amends Ord. 8064, classification and compensation plan (Special)
13968	Amends Ord. 8064, classification and compensation plan (Special)
13969	Amends Ord. 8064, classification and compensation plan (Special)
13970	Amends Ord. 8064, classification and compensation plan (Special)
13971	Grants special privilege (Special)
13972	Repeals Ords. 13518, 13512, 13513, 13527, 13526, 13514, 13515, 13525, 13520, 13511, 13524, 13516, 13521, 13522, 13519, 13523, 13517, 13529, 13528, 13530, 13623, 13624, special privilege (Special)
13973	Grants special privilege (Special)
13974	Adds §§ 12.20.170—12.20.230, traffic control devices (12.20)
13975	Amends Ord. 5420, liquor district 300 (Special)
13976	Creates liquor district No. 1061 (Special)
13977	Permits Desiree Hammond to use portion of Skyline Youth Park (Special)
13978	Permits SOA Watch on the Border to use portion of San Jacinto Plaza (Special)
13979	Permits Fiesta de Las Flores to use portion of Zaragoza Park (Special)
13980	Grants special privilege (Special)
13981	Rezone (Special)
13982	Authorizes mayor to execute quitclaim deed (Special)
13983	Authorizes mayor to execute quitclaim deed (Special)
13984	Creates liquor district No. 1062 (Special)
13985	Rezone (Special)
13986	Rezone (Special)
13987	Rezone (Special)
13988	Rezone (Special)
13989	Creates liquor district No. 1060 (Special)
13990	Amends Ord. 6469, liquor district 483 (Special)
13991	Amends Ord. 6249, liquor district 458 (Special)

Ordinance Number	
13992	Amends Ord. 13949, 1999 general election (Special)
13993	Authorizes mayor to sign deed without warranty (Special)
13994	Authorizes mayor to sign quitclaim deed (Special)
13995	Amends Ord. 8064, classification and compensation plan (Special)
13996	Amends Ord. 8064, classification and compensation plan (Special)
13997	Amends Ord. 8064, classification and compensation plan (Special)
13998	Amends Ord. 8064, classification and compensation plan (Special)
13999	Rezone (Special)
14000	Rezone (Special)
14001	Easement vacation (Special)
14002	Grants special privilege (Special)
14003	Grants franchise to Pinnacle Media, L.L.C. (Repealed by 16794)
14004	Creates liquor district No. 1067 (Special)
14005	Creates liquor district No. 1066 (Special)
14006	Amends Ord. 8125, liquor district No. 654 (Special)
14007	Amends Ord. 4619, liquor district No. 269 (Special)
14008	Amends 12.88.150, traffic schedules (12.88)
14009	Permits use of portion of Veterans Park (Special)
14010	Permits use of portion of Shawver Park (Special)
14011	Permits use of portion of Marwood Park (Special)
14012	Authorizes mayor to sign quitclaim deed (Special)
14013	Rezone (Special)
14014	Rezone (Special)
14015	Rezone (Special)
14016	Rezone (Special)
14017	Creates liquor district No. 1064 (Special)
14018	Amends Ord. dated 3/6/47, liquor district 8 (Special)
14019	Amends § 2.16.050, zoning board of adjustment (Repealed by 16888)
14020	Amends § 13.24.200, city parks and recreation fees (13.24)
14021	Grants special privilege (Special)
14022	Grants special privilege (Special)
14023	Permits use of Buena Vista Park (Special)
14024	Creates liquor district No. 1069 (Special)
14025	Creates liquor district No. 1065 (Special)
14026	Amends Ord. 12224, liquor district No. 916 (Special)
14027	Authorizes mayor to sign special warranty deed (Special)
14028	Authorizes mayor to sign quitclaim deed (Special)
14029	Amends Ord. 8064, classification and compensation plan (Special)
14030	Amends Ord. 8064, classification and compensation plan (Special)
14031	Amends Ord. 8064, classification and compensation plan (Special)
14032	Grants special privilege (Special)
14033	Rezone (Special)
14034	Creates liquor district No. 1068 (Special)
14035	Creates liquor district No. 1070 (Special)
14036	Amends Ord. 369, liquor district No. 19 (Special)
14037	Amends § 12.88.150, speed limits (Special)
14038	Amends § 12.88.150, speed limits (Special)

Ordinance Number	
14039	Amends § 13.24.130, city parks and recreation areas (13.24)
14040	Permits use of portion of Vista Del Valle Park (Special)
14041	Permits use of portion of Paul Harvey Park (Special)
14042	Permits use of portion of Shawver Park Pavillion (Special)
14043	Amends Ord. 8064, classification and compensation plan (Special)
14044	Amends Ord. 8064, classification and compensation plan (Special)
14045	Amends Ord. 8064, classification and compensation plan (Special)
14046	Amends Ord. 8064, classification and compensation plan (Special)
14047	Street vacation (Special)
14048	Street vacation (Special)
14049	Street vacation (Special)
14050	Amends Ord. 12386, liquor district 924 (Special)
14051	Grants special permit (Special)
14052	Grants special privilege (Special)
14053	Rezone (Special)
14054	Rezone (Special)
14055	Creates liquor district No. 1071 (Special)
14056	Street vacation (Special)
14057	Amends drainage plan of subdivision improvement design standards (Not codified)
14058	Rezone (Special)

Ordinance Number	
14059	Rezone (Special)
14060	Rezone (Special)
14061	Amends Ord. 2116, liquor district No. 64 (Special)
14062	Creates liquor district No. 1072 (Special)
14063	Amends § 12.88.150(C), traffic schedules (12.88)
14064	Designates reinvestment zone "X" (Special)
14065	Amends Ord. 12524, enterprise zone area (Special)
14066	Amends Ord. 8064, classification and compensation plan (Special)
14067	Amends Ord. 8064, classification and compensation plan (Special)
14068	Amends Ord. 8064, classification and compensation plan (Special)
14069	Amends Ord. 8064, classification and compensation plan (Special)
14070	Amends Ord. 8064, classification and compensation plan (Special)
14071	Grants special privilege (Special)
14072	Rezone (Special)
14073	Amends Ord. 6522, liquor district No. 485 (Special)
14074	Amends Ord. 7141, liquor district No. 538 (Special)
14075	Amends § 12.88.040(J), traffic schedules (12.88)
14076	Amends § 12.88.060(A), traffic schedules (12.88)
14077	Amends § 12.88.150(K), traffic schedules (12.88)
14078	Amends § 12.88.010, traffic schedules (12.88)
14079	Permits use of Tom Lea Park (Special)
14080	Alley vacation (Special)
14081	Alley vacation (Special)
14082	Grants special privilege (Special)
14083	Amends Ord. 6972, liquor district No. 526 (Special)
14084	Creates liquor district No. 1073 (Special)
14085	Creates liquor district No. 1074 (Special)
14086	Creates liquor district No. 1075 (Special)
14087	Amends Ord. 8386, liquor district No. 677 (Special)
14088	Amends Ord. 8064, classification and compensation plan (Special)
14089	Grants special permit (Special)
14090	Amends §§ 20.65.120, 20.65.150, 20.65.160, 20.65.180, 20.65.190, 20.65.200, 20.65.210 and 20.65.220, zoning (Repealed by 16653)
14091	Amends Ord. 12674, liquor district No. 810 (Special)
14092	Amends Arroyo Park lease to El Paso Tennis Club (Special)
14093	Permits use of Tom Lea Upper Park (Special)
14094	Amends Ord. 8064, classification and compensation plan (Special)
14095	Amends Ord. 8064, classification and compensation plan (Special)
14096	Amends Ord. 8064, classification and compensation plan (Special)
14097	Amends Ord. 8064, classification and compensation plan (Special)
14098	Amends Ord. 8064, classification and compensation plan (Special)
14099	Amends Ord. 8064, classification and compensation plan (Special)
14100	Amends Ord. 8064, classification and compensation plan (Special)
14101	Grants special privilege (Special)
14102	Building and zoning advisory committee (Repealed by 16328)
14103	Grants special permit (Special)
14104	Grants special permit (Special)
14105	Creates liquor district No. 1078 (Special)

Ordinance Number	
14106	Creates liquor district No. 1079 (Special)
14107	Permits use of Pavo Real Recreation Center (Special)
14108	Rezone (Special)
14109	Rezone (Special)
14110	Creates liquor district No. 1076 (Special)
14111	Amends Ord. 8064, classification and compensation plan (Special)
14112	Grants special privilege (Special)
14113	Grants special privilege (Special)
14114	Rezone (Special)
14115	Creates liquor district No. 1081 (Special)
14116	Amends Ord. No. 14102, building and zoning advisory committee (Repealed by 16328)
14117	Permits use of Mundy Park (Special)
14118	Permits use of Tom Lea Upper Park (Special)
14119	Permits use of El Barrio Park (Special)
14120	Permits use of Lambka Park (Special)
14121	Permits use of Pavo Real Recreation Center's land (Special)
14122	Utility easement vacation (Special)
14123	Rezone (Special)
14124	Creates liquor district No. 1080 (Special)
14125	Amends Ord. 5359, liquor district No. 334 (Special)
14126	Amends Ord. 1064, classification and compensation plan (Special)
14127	Creates liquor district No. 1083 (Special)
14128	Creates liquor district 1077 (Special)
14129	Permits use of Shawver Park Pavilion (Special)
14130	Amends § 12.88.200, parking restrictions (12.88)
14131	Rezone (Special)
14132	Rezone (Special)
14133	Rezone (Special)
14134	Creates liquor district No. 1084 (Special)
14135	Amends Ord. 8064, classification and compensation plan (Special)
14136	Amends Ord. 5150, liquor district No. 305 (Special)
14137	Creates liquor district No. 1086 (Special)
14138	Creates liquor district No. 1082 (Special)
14139	Authorizes mayor to sign deed without warranty (Special)
14140	Grants special privilege (Special)
14141	Creates liquor district No. 1087 (Special)
14142	Amends Ord. 8064, classification and compensation plan (Special)
14143	Authorizes lease of Arlington Shelter to Boys and Girls Clubs (Special)
14144	Permits use of Shawver Park (Special)
14145	Rezone (Special)
14146	Grants special permit (Special)
14147	Creates liquor district No. 1088 (Special)
14148	Amends Ord. 8064, classification and compensation plan (Special)
14149	Amends Ord. 8064, classification and compensation plan (Special)
14150	Rezone (Special)
14151	Grants special privilege (Special)
14152	Approves assignment of special privilege (Special)
14153	Repeals Ord. 10750 (Repealer)
14154	Repeals Ord. 11461 (Repealer)
14155	Amends Ord. 2799, liquor district No. 119 (Special)

Ordinance Number	
14156	Creates liquor district No. 964 (Special)
14157	Creates liquor district No. 1090 (Special)
14158	Authorizes Washington Park Senior Citizen's Center lease to Washington Park Senior Citizen Center Advisory Committee (Special)
14159	Authorizes Wellington Chew Senior Citizen Center lease to Wellington Chew Senior Citizen Center Advisory Committee (Special)
14160	Amends Ords. 13972 and 14112, special privilege (Special)
14161	Rezone (Special)
14162	Rezone (Special)
14163	Grants special permit (Special)
14164	Grants special permit (Special)
14165	Designates reinvestment zone "Y" (Special)
14166	Designates reinvestment zone "Z" (Special)
14167	Designates reinvestment zone "AA" (Special)
14168	Bond issuance (Special)
14169	Bond issuance (Special)
14170	Creates liquor district No. 1089 (Special)
14171	Amends Ord. 12917, records and information charges (Special)
14172	Amends §§ 2.44.010—2.44.090, courts (2.44)
14173	Grants special permit (Special)
14174	Amends Ord. 8064, classification and compensation plan (Special)

14175 Amends Ord. 8064, classification and compensation plan (Special)
14176 Amends Ord. 8064, classification and compensation plan (Special)
14177 Amends Ord. 8064, classification and compensation plan (Special)
14178 Amends Ord. 8064, classification and compensation plan (Special)
14179 Amends Ord. 8064, classification and compensation plan (Special)
14180 Amends Ord. 8064, classification and compensation plan (Special)
14181 Amends Ord. 8064, classification and compensation plan (Special)
14182 Amends Ord. 8064, classification and compensation plan (Special)
14183 Amends Ord. 8064, classification and compensation plan (Special)
14184 Amends Ord. 8064, classification and compensation plan (Special)
14185 Amends Ord. 8064, classification and compensation plan (Special)
14186 Amends Ord. 8064, classification and compensation plan (Special)
14187 Amends Ord. 8064, classification and compensation plan (Special)
14188 Amends Ord. 8064, classification and compensation plan (Special)
14189 Amends § 6.16.090, taxicabs (6.16)
14190 Creates liquor district No. 1091 (Special)
14191 Amends Ord. 3568, liquor district No. 189 (Special)
14192 Creates liquor district No. 1094 (Special)
14193 Amends § 12.88.040, traffic schedules (12.88)
14194 Amends § 2.40.020, museum department (2.40)
14195 Grants special privilege (Special)
14196 Grants special privilege (Special)
14197 Rezone (Special)
14198 Rezone (Special)
14199 Rezone (Special)
14200 Annexation (Special)
14201 Creates liquor district No. 1095 (Special)
14202 Amends § 15.08.130, street rentals (15.08)
14203 Approves special privilege assignment (Special)
14204 Rezone (Special)
14205 Grants special permit (Special)
14206 Creates liquor district No. 1085 (Special)
14207 Grants franchise to Rio Grande Ambulance Services (Special)
14208 Amends § 12.88.040, traffic schedules (12.88)
14209 Amends § 9.04.380, solid waste management (9.04)
14210 Amends § 9.08.020, junked vehicles (9.08)
14211 Permits use of Shawver Park and Pavilion (Special)
14212 Permits use of Shawver Park (Special)
14213 Amends Ord. 8064, classification and compensation plan (Special)
14214 Amends Ord. 8064, classification and compensation plan (Special)
14215 Amends Ord. 8064, classification and compensation plan (Special)
14216 Rezone (Special)
14217 Grants special privilege (Special)
14218 Rezone (Special)
14219 Rezone (Special)
14220 Rezone (Special)
14221 Rezone (Special)
14222 Rezone (Special)
14223 Rezone (Special)
14224 Rezone (Special)
14225 1999 tax levy (Special)
14226 Creates liquor district No. 1092 (Special)
14227 Amends Ord. 9819, liquor district No. 785 (Special)
14228 Creates liquor district No. 1096 (Special)
14229 Creates liquor district No. 1093 (Special)
14230 Amends § 12.88.150, traffic schedules
14231 Repeals Ord. 13817 (Repealer)
14232 Amends Ord. 8064, classification and compensation plan (Special)
14233 Amends Ord. 8064, classification and compensation plan (Special)

Repealed by 15790, 15808

14234	Creates liquor district No. 1098 (Special)
14235	Creates liquor district No. 1099 (Special)
14236	Creates liquor district No. 1097 (Special)
14237	Amends Ord. 8064, classification and compensation plan (Special)
14238	Amends Ord. 8064, classification and compensation plan (Special)
14239	Rezone (Special)
14240	Rezone (Special)
14241	Rezone (Special)
14242	Amends Ord. 13973, special privilege (Special)
14243	Creates liquor district No. 1100 (Special)
14244	Permits use of Houston Park (Special)
14245	Amends § 12.88.030, traffic schedules (12.88)
14246	Easement vacation (Special)
14247	Easement vacation (special)
14248	Rezone (Special)
14249	Permits use of Yucca Park (Special)
14250	Permits use of Boys Club Park (Special)
14251	Amends development license agreement wih University of Texas at El Paso (Special)
14252	Rezone (Special)
14253	Rezone (Special)
14254	Rezone (Special)
14255	Water and sewer revenue bonds (Special)
14256	Water and sewer revenue bonds (Special)
14257	Creates liquor district No. 1103 (Special)
14258	Amends Ord. 7809, liquor district No. 616 (Special)
14259	Grants special permit (Special)
14260	Grants special privilege (Special)
14261	Annexation (Special)
14262	Annexation (Special)
14263	Annexation (Special)
14264	Annexation (Special)
14265	Annexation (Special)
14266	Creates liquor district No. 1102 (Special)
14267	Amends Ord. 6394, liquor district No. 476 (Special)
14268	Creates liquor district No. 1105 (Special)
14269	Amends Ord. 7537, liquor district No. 574 (Special)
14270	Permits use of Veterans Park Pavilion (Special)
14271	Amends Ord. 8064, classification and compensation plan (Special)
14272	Amends § 9.04.430 [9.04.365], transportation and disposal of waste tires (~~9.04~~)
14273	Grants special privilege (Special)
14274	Amends § 20.40.020, zoning (Special)
14275	Creates liquor district No. 1101 (Special)
14276	Creates liquor district No. 1108 (Special)
14277	Creates liquor district No. 1104 (Special)
14278	Creates liquor district No. 1106 (Special)
14279	Deletes § 13.32.070B, parades and temporary events (Repealer)
14280	Amends § 9.16.010, nuisances (9.16)
14281	Amends Ord. 3586, liquor district No. 146 (Special)
14282	Amends Ord. 8064, classification and compensation plan (Special)
14283	Amends Ord. 8064, classification and compensation plan (Special)
14284	Amends Ord. 8064, classification and compensation plan (Special)
14285	Amends Ord. 8064, classification and compensation plan (Special)
14286	Amends Ord. 8064, classification and compensation plan (Special)
14287	Authorizes mayor and city attorney to act in accordance with Ch. 283 of Texas Local Government Code; repeals Ords. 10966, 13191 and 13484 (Special)
14288	Rezone (Special)
14289	Rezone (Special)
14290	Rezone (Special)
14291	Creates liquor district No. 1107 (Special)
14292	Easement vacation (Special)
14293	Easement vacation (Special)
14294	Rezone (Special)
14295	Rezone (Special)
14296	Amends § 12.88.150, traffic schedules (12.88)
14297	Amends § 12.44.180, stopping, standing and parking (12.44)
14298	Amends Ord. 8064, classification and compensation plan (Special)

Ordinance Number	
14299	Grants special privilege (Special)
14300	Grants special privilege (Special)
14301	Rezone (Special)
14302	Rezone (Special)
14303	Amends Ord. 5984, liquor district No. 426 (Special)
14304	Amends Ord. 3992, liquor district No. 230 (Special)
14305	Amends Ord. 3948, liquor district No. 225 (Special)
14306	Adds § 18.08.103.11, building code; deletes Ch. 18.56 (18.08)
14307	Amends § 9.52.080, fire prevention code (9.52)
14308	Amends Ch. 18.16, electrical code (18.16)
14309	Authorizes use of San Jacinto Plaza Park (Special)
14310	Amends § 12.88.030, traffic schedules (Special)
14311	Grants special privilege (Special)
14312	Grants special privilege (Special)
14313	Grants special privilege (Special)
14314	Annexation plan (Special)
14315	Adds Art. V to Ch. 14.16, airport use regulations (14.16)
14316	Street improvement assessments (Repealed by 14471)
14317	Renews franchise for Life Ambulance Service (Special)
14318	Amends Ord. 3000, liquor district No. 140 (Special)
14319	Creates liquor district No. 1109 (Special)
14320	Grants special permit (Special)
14321	Grants special permit (Special)
14322	Amends Ord. 8064, classification and compensation manual (Special)
14323	Amends Ord. 8064, classification and compensation manual (Special)
14324	Amends Ord. 8064, classification and compensation manual (Special)
14325	Amends Ord. 8064, classification and compensation manual (Special)
14326	Amends Ords. 10081 and 12871, liquor district No. 807 (Special)
14327	Rezone (Special)
14328	Rezone (Special)
14329	Rezone (Special)
14330	Amends Ord. 12931, rezone (Special)
14331	Grants special privilege (Special)
14332	Grants special permit (Special)
14333	Rezone (Special)
14334	Creates liquor district No. 1110 (Special)
14335	Grants special permit (Special)
14336	Amends Ord. 11039, liquor district No. 853 (Special)
14337	Grants special privilege (Special)
14338	Creates liquor district No. 1111 (Special)
14339	Authorizes special warranty deed (Special)
14340	Authorizes special warranty deed (Special)
14341	Grants special privilege (Repealed by 14771)
14342	Grants special permit (Special)
14343	Authorizes deed without warranty (Special)
14344	Rezone (Special)
14345	Rezone (Special)
14346	Rezone (Special)
14347	Grants special permit (Special)
14348	Grants special permit (Special)
14349	Grants special permit (Special)
14350	Amends Ord. 8064, classification and compensation manual (Special)

Ordinance Number	
14351	Amends Ord. 8064, classification and compensation manual (Special)
14352	Amends Ord. 8064, classification and compensation manual (Special)
14353	Authorizes special warranty deed (Special)
14354	Creates liquor district No. 1116 (Special)
14355	Amends Ord. 2308, liquor district No. 82 (Special)
14356	Creates liquor district No. 1113 (Special)
14357	Rezone (Special)
14358	Rezone (Special)
14359	Grants special permit (Special)
14360	Grants franchise to Southern Union Company (Special)
14361	Amends Ord. 8064, classification and compensation manual (Special)
14362	Amends Ord. 8064, classification and compensation manual (Special)
14363	Amends Ord. 8064, classification and compensation manual (Special)
14364	Amends Ord. 8064, classification and compensation manual (Special)
14365	Amends Ord. 8064, classification and compensation manual (Special)
14366	Amends Ord. 8064, classification and compensation manual (Special)
14367	Amends Ord. 8064, classification and compensation manual (Special)
14368	Amends Ord. 8064, classification and compensation manual (Special)
14369	Creates liquor district No. 1114 (Special)
14370	Rezone (Special)
14371	Grants special permit (Special)
14372	Amends § 20.02.692, zoning (Repealed by 16653)
14373	Amends § 20.66.130(B), zoning (Repealed by 16304)
14374	Creates liquor district No. 1115 (Special)
14375	Permits use of Tom Lea Upper Park (Special)
14376	Permits use of Eastwood Album Park (Special)
14377	Calls for special election (Repealed by 14413)
14378	Calls for bond election (Special)
14379	Authorizes special warranty deed (Special)
14380	Permits use of Zaragoza Park (Special)
14381	Bond issue (Special)
14382	Amends Ord. 9053, liquor district No. 733 (Special)
14383	Amends Ord. 8064, classification and compensation manual (Special)
14384	Street vacation (Special)
14385	Street vacation (Special)
14386	Permits use of Shawver Park (Special)
14387	Grants special permit (Special)
14388	Grants special privilege (Special)
14389	Grants special privilege (Special)
14390	Permits use of Tom Lea Upper Park (Special)
14391	Permits use of Shawver Park (Special)

Ordinance Number	
14392	Amends Ord. 12176, liquor district No. 913 (Special)
14393	Amends Ord. 10020, liquor district No. 802 (Special)
14394	Amends Ord. 8064, classification and compensation manual (Special)
14395	Amends §§ 19.12.020(B) and 19.12.100(A)(2), subdivisions (19.12)
14396	Rezone (Special)
14397	Rezone (Special)
14398	Rezone (Special)
14399	Grants special privilege (Special)
14400	Rezone (Special)
14401	Amends Ord. 8064, classification and compensation manual (Special)
14402	Amends Ord. 8064, classification and compensation manual (Special)
14403	Amends Ord. 8064, classification and compensation manual (Special)
14404	Amends Ord. 8064, classification and compensation manual (Special)
14405	Amends Ord. 8064, classification and compensation manual (Special)
14406	Easement vacation (Special)
14407	Easement vacation (Special)
14408	Easement vacation (Special)
14409	Designates reinvestment zone "BB" (Special)
14410	Adds § 2.64.205, employee pension fund (2.64)
14411	Permits use of Tom Lea Upper Park (Special)
14412	Permits use of Tom Lea Upper Park (Special)
14413	Repeals Ord. 14377, call for special election (Repealer)
14414	Adds §§ 20.02.698, 20.02.715.3 and 20.02.735; amends §§ 20.02.692 and 20.02.703, zoning (Repealed by 16653)
14415	Adds §§ 20.66.120(B)(3), (4) and 20.66.255(C)—(F); amends § 20.66.130(B), zoning (Repealed by 16653)
14416	Amends Ord. 8064, classification and compensation manual (Special)
14417	Amends Ord. 8064, classification and compensation manual (Special)
14418	Amends Ord. 8064, classification and compensation manual (Special)
14419	Amends Ord. 8064, classification and compensation manual (Special)
14420	Amends Ord. 8064, classification and compensation manual (Special)
14421	Adds § 12.44.170(F), stopping, standing and parking (12.44)
14422	Permits use of Shawver Park (Special)
14423	Grants special privilege (Special)
14424	Amends § 13.24.200, park and recreation areas (13.24)
14425	Bond issue (Special)
14426	Bond issue (Special)
14427	Rezone (Special)
14428	Rezone (Special)
14429	Rezone (Special)
14430	Rezone (Special)
14431	Amends § 20.61.020, zoning (Repealed by 16653)
14432	Creates liquor district No. 1118 (Special)
14433	Amends Ord. 3685, liquor district No. 198 (Special)

Ordinance Number	
14434	Permits use of Nations Tobin Park (Special)
14435	Adds § 12.88.150(X), traffic schedules (12.88)
14436	Authorizes quitclaim deed (Special)
14437	Authorizes quitclaim deed (Special)
14438	Amends Ord. 8064, classification and compensation manual (Special)
14439	Amends Ord. 8064, classification and compensation manual (Special)
14440	Amends Ord. 8064, classification and compensation manual (Special)
14441	Grants special privilege (Special)
14442	Permits use of Vista Del Valle Park (Special)
14443	Permits use of Tom Lea Upper Park (Special)
14444	Amends Ord. 14378, call for bond election (Special)
14445	Rezone (Special)
14446	Grants special permit (Special)
14447	Permits use of Eastwood Album Park (Special)
14448	Grants special privilege (Special)
14449	Amends Ord. 10672, liquor district No. 841 (Special)
14450	Rezone (Special)
14451	Rezone (Special)
14452	Rezone (Special)
14453	Grants special permit (Special)
14454	Rezone (Special)
14455	Rezone (Special)
14456	Amends §§ 15.20.030, 15.20.040, 15.20.050, 15.20.140 and 15.20.160, stormwater management (15.20)
14457	Permits use of Madeline Park (Special)
14458	Permits use of Memorial Park (Special)
14459	Permits use of Veterans Park (Special)
14460	Amends Ord. 2216, liquor district No. 71 (Special)
14461	Road vacation (Special)
14462	Amends Ord. 8064, classification and compensation plan (Special)
14463	Amends Ord. 8064, classification and compensation plan (Special)
14464	Amends Ord. 8064, classification and compensation plan (Special)
14465	Amends Ord. 8064, classification and compensation plan (Special)
14466	Amends Ord. 8064, classification and compensation plan (Special)
14467	Amends Ord. 8064, classification and compensation plan (Special)
14468	Amends Ord. 8064, classification and compensation plan (Special)
14469	Amends Ord. 8064, classification and compensation plan (Special)
14470	Grants special privilege (Special)
14471	Repeals Ord. 14316 (Repealer)
14472	Easement vacation (Special)
14473	Amends Ord. 10511, liquor district No. 835 (Special)
14474	Creates liquor district No. 1119 (Special)
14475	Creates liquor district No. 1120 (Special)
14476	Permits use of Veterans Park Pavilion (Special)
14477	Permits use of Pavo Real Park Pavilion (Special)
14478	Amends § 12.44.180, vehicles and traffic regulations (12.44)
14479	Creates new city department of financial services (Special)

Ordinance Number	
14480	Creates liquor district No. 1117 (Special)
14481	Amends Ord. 8855, liquor district 719 (Special)
14482	Creates liquor district No. 1121 (Special)
14483	Permits use of Nations Tobin Park (Special)
14484	Permits use of Memorial Park (Special)
14485	Permits use of Zaragoza Park (Special)
14486	Defines specifications for yearly city audit (Special)
14487	Rezone (Special)
14488	Rezone (Special)
14489	Rezone (Special)
14490	Rezone (Special)
14491	Rezone (Special)
14492	Amends Ord. 6329, liquor district No. 467 (Special)
14493	Amends Ord. 8705, liquor district No. 708 (Special)
14494	Creates liquor district No. 1124 (Special)
14495	Amends Ord. 7216, liquor district No. 544 (Special)
14496	Amends Ord. 14360, franchise to Southern Union Company (Special)
14497	Grants special privilege (Special)
14498	Creates liquor district No. 1123 (Special)
14499	Creates liquor district No. 1125 (Special)
14500	Amends Ord. 12602 which amended Ord. 10592, liquor district 839 (Special)
14501	Revises class of communications systems technologist (Special)
14502	Amends § 10.12.010, firearms (10.12)
14503	Amends § 13.25.010, zoo admission fees (13.25)
14504	Permits use of Vista del Sol Park (Special)
14505	Adds Ch. 2.06, bond overview advisory committee (Repealed by 16933)
14506	Grants special privilege (Special)
14507	Street vacation (Special)
14508	Permits use of Mary Webb Park (Special)
14509	Grants special privilege (Special)
14510	Permits use of Veterans Park Pavilion (Special)
14511	Amends Ord. 8064, classification and compensation plan (Special)
14512	Amends Ord. 8064, classification and compensation plan (Special)
14513	Amends Ord. 8064, classification and compensation plan (Special)
14514	Amends Ord. 8064, classification and compensation plan (Special)
14515	Amends Ord. 8064, classification and compensation plan (Special)
14516	Amends Ord. 8064, classification and compensation plan (Special)
14517	Amends Ord. 8064, classification and compensation plan (Special)
14518	Amends Ord. 8064, classification and compensation plan (Special)
14519	Amends Ord. 8064, classification and compensation plan (Special)
14520	Amends Ord. 8064, classification and compensation plan (Special)
14521	Amends Ord. 8064, classification and compensation plan (Special)
14522	Amends Ord. 8064, classification and compensation plan (Special)
14523	Amends Ord. 9780, liquor district 781 (Special)
14524	Grants special privilege (Special)
14525	Grants special privilege (Special)
14526	Grants special privilege (Special)

Ordinance Number	
14527	Grants special permit (Special)
14528	Rezone (Special)
14529	Repeals Ord. 11459 (Repealer)
14530	Creates liquor district No. 1127 (Special)
14531	Amends § 12.88.030, vehicles and traffic schedules (12.88)
14532	Rezone (Special)
14533	Rezone (Special)
14534	Amends Ord. 8820, medical services policy board (Not codified)
14535	Amends Ords. 8820, 10874 and 22535, emergency medical services system (Not codified)
14536	Amends Ord. 8065 [8064], classification and compensation plan (Special)
14537	Amends Ord. 8064, classification and compensation plan (Special)
14538	Amends Ord. 8064, classification and compensation plan (Special)
14539	Amends Ord. 8064, classification and compensation plan (Special)
14540	Amends Ord. 8064, classification and compensation plan (Special)
14541	Rezone (Special)
14542	Grants special permit (Special)
14543	Rezone (Special)
14544	Adds §§ 3.04.015 and 3.04.025; repeals §§ 3.04.010—3.04.030, property taxes (3.04)
14545	Permits use of Madeline Park (Special)
14546	Permits use of Tom Lea Upper Park (Special)
14547	Authorizes mayor to sign quitclaim deed (Special)
14548	Authorizes mayor to sign quitclaim deed (Special)
14549	Grants special privilege (Special)
14550	Rezone (Special)
14551	Rezone (Special)
14552	Amends Ord. 8064, classification and compensation plan (Special)
14553	Permits use of Pavo Real Park Pavillion (Special)
14554	Easement vacation (Special)
14555	Rezone (Special)
14556	Amends § 12.88.030, parking (12.88)
14557	Amends § 12.88.030, parking (12.88)
14558	Amends § 12.88.030, parking (12.88)
14559	Amends § 12.88.030, parking (12.88)
14560	Authorizes mayor to sign a replacement quitclaim deed (Special)
14561	Grants special permit (Special)
14562	Rezone (Special)
14563	Grants special privilege (Special)
14564	Authorizes lease amendment with Skyline Optimist Club (Special)
14565	Repeals and replaces Ch. 5.08, alcoholic beverages (5.08)
14566	Amends §§ 20.10.030(O)—(R), 20.12.030(O)—(R), 20.14.030(E)—(P), 20.18.040(E) and (M) [20.22.030(M) and 20.22.040(E)], 20.18.050(Q)—(R), 20.18.060(E), (F) and (M), 20.24.040(E) and (M), 20.28.040(E), 20.30.040(E), 20.32.030(L), 20.32.040(H), 20.36.020(A)(13), 20.36.020 [20.42.020](A)(40), 20.38.020(A)(24), 20.40.020(A)(30), 20.44.020(A)(21), 20.46.020(A)(2)(e),

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	20.48.020(A)(5), 20.50.020(A)(5), 20.53.030(5), (8) and (18), 20.58.040(A)(11); repeals and replaces §§ 20.08.090—20.08.110, zoning (Repealed by 16653)
14567	Amends § 12.88.030, parking (12.88)
14568	Permits use of Tom Lea Upper Park (Special)
14569	Designates Reinvestment Zone "CC" (Special)
14570	Rezone (Special)
14571	Amends Ord. 8281, rezone (Special)
14572	Rezone (Special)
14573	Rezone (Special)
14574	Rezone (Special)
14575	Grants special permit (Special)
14576	Grants special permit (Special)
14577	Rezone (Special)
14578	Rezone (Special)
14579	Rezone (Special)
14580	Rezone (Special)
14581	Amends § 12.88.150, parking (12.88)
14582	Amends Ord. 8064, classification and compensation plan (Special)
14583	Amends Ord. 8064, classification and compensation plan (Special)
14584	Amends Ord. 8064, classification and compensation plan (Special)
14585	Amends Ord. 8064, classification and compensation plan (Special)
14586	Amends Ord. 8064, classification and compensation plan (Special)
14587	Amends Ord. 8064, classification and compensation plan (Special)
14588	Amends Ord. 8064, classification and compensation plan (Special)
14589	Amends Ord. 8064, classification and compensation plan (Special)
14590	Amends Ord. 8064, classification and compensation plan (Special)
14591	Adds §§ 2.88.060, 2.88.070; amends §§ 2.88.020, 2.88.030 and 2.88.040k (Repealed by 15693)
14592	Rezone (Special)
14593	Authorizes Washington Park Senior Citizen Center lease to the Washington Park Senior Advisory Committee, Inc. (Special)
14594	Authorizes Wellington Chew Senior Citizen Center to Wellington Chew Senior Advisory Committee (Special)
14595	Amends § 20.64.175, zoning (Repealed by 16653)
14596	Rezone (Special)
14597	Rezone (Special)
14598	Rezone (Special)
14599	Rezone (Special)
14600	Grants special permit (Special)
14601	Amends Ch. 14.24, Appendix A, commercial air carriers rates and charges (14.24)
14602	Amends Ch. 9.12, food and food handling establishments (9.12)
14603	Grants special permit (Special)
14604	Authorizes quitclaim deed (Special)
14605	Authorizes quitclaim deed (Special)
14606	Authorizes quitclaim deed (Special)
14607	Authorizes quitclaim deed (Special)
14608	Amends Ord. 8064, classification and compensation plan (Special)
14609	Amends Ord. 8064, classification and compensation plan (Special)
14610	Amends Ord. 8064, classification and compensation plan (Special)

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14611	Amends Ord. 8064, classification and compensation plan (Special)
14612	Amends § 12.88.030, traffic schedules (12.88)
14613	Permits use of Shawver Park Pavillion (Special)
14614	Amends § 18.02.109.1.8, building and construction administrative code (18.02)
14615	Permits use of portion of Eastwood Album Park (Special)
14616	Permits use of portion of Mary Webb Park (Special)
14617	Permits use of Shawver Park Pavillion (Special)
14618	Amends Ord. 8064, classification and compensation plan (Special)
14619	Amends Ord. 8064, classification and compensation plan (Special)
14620	Amends Ord. 8064, classification and compensation plan (Special)
14621	Amends Ord. 8064, classification and compensation plan (Special)
14622	Amends Ord. 8064, classification and compensation plan (Special)
14623	Amends Ord. 8064, classification and compensation plan (Special)
14624	Amends Ord. 8064, classification and compensation plan (Special)
14625	Amends Ord. 8064, classification and compensation plan (Special)
14626	Amends Ord. 8064, classification and compensation plan (Special)
14627	Amends Ord. 8064, classification and compensation plan (Special)
14628	Amends Ord. 8064, classification and compensation plan (Special)
14629	Amends Ord. 8064, classification and compensation plan (Special)
14630	Permits use of Veterans Park Pavillion (Special)
14631	Amends § 12.88.030, traffic schedules (12.88)
14632	Amends § 12.88.030, traffic schedules (12.88)

Ordinance Number	
14633	Amends § 12.88.030, traffic schedules (12.88)
14634	Amends § 12.44.100, stopping, standing and parking generally (12.44)
14635	2000 tax levy (Special)
14636	Grants special privilege (Special)
14637	Grants special privilege (Special)
14638	Amends § 12.88.030, parking (12.88)
14639	Designates reinvestment zone "DD" (Special)
14640	Designates reinvestment zone "EE" (Special)
14641	Designates reinvestment zone "FF" (Special)
14642	Authorizes Coronado Baptist Church to use portion of Frank Delgado Park for back to school base (Special)
14643	Rezone (Special)
14644	Rezone (Special)
14645	Rezone (Special)
14646	Rezone (Special)
14647	Rezone (Special)
14648	Rezone (Special)
14649	Rezone (Special)
14650	Rezone (Special)
14651	Rezone (Special)
14652	Amends Ord. 8064, classification and compensation plan (Special)
14653	Amends Ord. 8064, classification and compensation plan (Special)
14654	Amends Ord. 8064, classification and compensation plan (Special)
14655	Amends Ord. 8064, classification and compensation plan (Special)
14656	Amends Ord. 8064, classification and compensation plan (Special)
14657	Amends Ord. 8064, classification and compensation plan (Special)
14658	Amends Ord. 8064, classification and compensation plan (Special)
14659	Grants special privilege (Special)
14660	Nominates an enterprise zone (Special)
14661	Rezone (Special)
14662	Rezone (Special)
14663	Rezone (Special)
14664	Rezone (Special)
14665	Rezone (Special)
14666	Rezone (Special)
14667	Rezone (Special)
14668	Amends § 1 of Ord. 14544, property taxes (Not codified)
14669	Authorizes special warranty deed (Special)
14670	Authorizes special warranty deed (Special)
14671	Designates reinvestment zone "GG" (Special)
14672	Amends Ord. 8064, classification and compensation plan (Special)
14673	Amends § 12.88.150, traffic (12.88)
14674	Permits use of a portion of Ponder Park for Democratic Party Neighborhood Festival (Special)
14675	Amends Ord. 8064, classification and compensation plan (Special)
14676	Grants special use permit (Special)
14677	Permits use of portion of Eastwood Album Park for a Madrigal Feast (Special)
14678	Permits use of Eastwood Album Park for Democratic Party Neighborhood Festival (Special)
14679	Authorizes joint use agreement for lease of recreation center (Special)
14680	Establishes ad hoc waste tire disposal advisory committee (Repealed by 16421)
14681	Authorizes execution of quitclaim deed (Special)
14682	Amends Ord. 8064, classification and compensation plan (Special)
14683	Amends Ord. 8064, classification and compensation plan (Special)

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14684	Amends Ord. 8064, classification and compensation plan (Special)
14685	Amends Ord. 8064, classification and compensation plan (Special)
14686	Amends Ord. 8064, classification and compensation plan (Special)
14687	Amends Ord. 8064, classification and compensation plan (Special)
14688	Amends Ord. 8064, classification and compensation plan (Special)
14689	Amends Ord. 8064, classification and compensation plan (Special)
14690	Amends Ord. 8064, classification and compensation plan (Special)
14691	Amends Ord. 8064, classification and compensation plan (Special)
14692	Amends Ord. 8064, classification and compensation plan (Special)
14693	Amends Ord. 8064, classification and compensation plan (Special)
14694	Amends Ord. 8064, classification and compensation plan (Special)
14695	Street vacation (Special)
14696	Adds § 19.28.060(D) and (E); adds Appendices 1A, lB, 2A and 2B to Title 19; amends §§ 19.04.040, 19.24.020(A), (C), (D)(3), 19.24.030(A)(6), subdivisions (19.04, 19.24, 19.28, Title 19 Appendix)
14697	Calls for special election for Charter amendments (Special)
14698	Grants special use permit (Special)
14699	Amends Ord. 14292, drainage easement vacation (Special)
14700	Adds Ch. 3.44, collection fee (3.44)
14701	Rezone (Special)
14702	Rezone (Special)
14703	Grants special use permit (Special)
14704	Amends Ord. 8064, classification and compensation plan (Special)
14705	Amends Ord. 8064, classification and compensation plan (Special)
14706	Amends Ord. 8064, classification and compensation plan (Special)
14707	Amends Ord. 8064, classification and compensation plan (Special)
14708	Amends Ord. 8064, classification and compensation plan (Special)
14709	Amends Ord. 8064, classification and compensation plan (Special)
14710	Amends Ord. 8064, classification and compensation plan (Special)
14711	Authorizes issuance and sale of bonds (Special)
14712	Amends § 14.12.080(B), (B)(8), aircraft (14.12)
14713	Amends § 2.06.40 [2.06.040], bond overview advisory committee (Repealed by 16933)
14714	Rezone (Special)
14715	Grants special use permit (Special)
14716	Rezone (Special)
14717	Amends § 12.88.030, traffic (12.88)
14718	Amends Ord. 8064, classification and compensation plan (Special)
14719	Extends effective date of Ch. 9.04 to September 30, 2003 (9.04)
14720	Amends Ord. 8064, classification and compensation plan (Special)
14721	Amends Ord. 8064, classification and compensation plan (Special)
14722	Amends Ord. 8064, classification and compensation plan (Special)
14723	Amends Ord. 8064, classification and compensation plan (Special)
14724	Amends § 12.88.040, traffic (12.88)
14725	Amends § 12.88.030, traffic (12.88)
14726	Amends § 13.24.200(A)(1) and (C)(3), streets, sidewalks, public places (13.24)

Ordinance Number	
14727	Permits use of Shawver Park and Pavilion for annual kite flying event (Special)
14728	Amends Ch. 18.08, building code (18.08)
14729	Adds Ch. 18.10, residential code; repeals Ord. 12689 (18.10)
14730	Amends Ch. 18.20, plumbing code; repeals Ord. 12682 (18.20)
14731	Amends Ch. 18.24, gas code; repeals Ord. 12690 (18.24)
14732	Amends Ch. 18.12, mechanical code; repeals Ord. 12691 (18.12)
14733	Amends Ord. 14697, calling for special election for Charter amendments (Special)
14734	Rezone (Special)
14735	Grants special use (Special)
14736	Grants special use (Special)
14737	Amends §§ 20.53.010 and 20.53.060, zoning (Repealed by 16653)
14738	Authorizes use of portion of Houston Park for church service (Special)
14739	Rezone (Special)
14740	Rezone (Special)
14741	Rezone (Special)
14742	Amends Ord. 14697, special election (Special)
14743	Grants special tise (Special)
14744	Amends Ord. 8064, classification and compensation plan (Special)
14745	Amends Ord. 8064, classification and compensation plan (Special)
14746	Amends Ord. 8064, classification and compensation plan (Special)
14748	Amends Ord. 8064, classification and compensation plan (Special)
14749	Rezone (Special)
14750	Rezone (Special)
14751	Rezone (Special)
14752	Amends § 2.16.050, zoning board of adjustment (Repealed by 16888)
14753	Amends Ord. 8064, classification and compensation plan (Special)
14754	Grants special privilege (Special)
14755	Designates reinvestment zone "RH" (Special)
14756	Designates reinvestment zone "II" (Special)
14757	Designates reinvestment zone "JJ" (Special)
14758	Rezone (Special)
14759	Grants special privilege (Special)
14760	Permits use of Carolina Recreation Center (Special)
14761	Grants special privilege (Special)
14762	Permits use of Eastwood Album Park (Special)
14763	Amends Ord. 8064, classification and compensation plan (Special)
14764	Closes public hearing and levies assessments for street improvement costs (Repealed by 15992)
14765	Authorizes sale and issuance of tax and revenue certificates of obligation (Special)
14766	Authorizes issuance of general obligation commercial paper notes (Special)
14767	Amends Ord. 14332, special permit (Special)
14768	Rezone (Special)
14769	Grants special permit (Special)
14770	Grants special permit (Special)
14771	Repeals Ord. 14341 (Repealer)
14772	Provides for 2001 general election (Special)
14773	Revises fire department medical services system fee schedule (Special)
14774	Grants franchise renewal (Special)
14775	Rezone (Special)
14776	Grants special permit (Special)
14777	Rezone (Special)
14778	Rezone (Special)

Ordinance Number	
14779	Amends § 12.88.110, traffic schedules (12.88)
14780	Amends § 12.88.040, traffic schedules (12.88)
14781	Moratorium on issuance of certain off-premise sign construction (Special)
14782	Grants special permit (Special)
14783	Rezone (Special)
14784	Grants special permit (Special)
14785	Grants special permit (Special)
14786	Grants special privilege (Special)
14787	Amends Ord. 13980, special privilege (Special)
14788	Amends § 20.64.175, off-street parking and loading requirements (Repealed by 16653)
14789	Amends § 19.08.040, platting procedures (19.08)
14790	Re-establishes El Paso Mountain Committee; repeals Ords. 8392, 8720, 11526 (Special)
14791	Approves and adopts policies within the plan for El Paso (Special)
14792	Rezone (Special)
14793	Rezone (Special)
14794	Amends Ord. 14772, general election (Special)
14795	Permits use of Frank Delgado Park (Special)
14796	Permits use of Tom Lea (Upper Park) (Special)
14797	Permits use of Frank Delgado Park (Special)
14798	Permits use of Eastwood Album Park (Special)
14799	Permits use of Sunrise Park (Special)
14800	Authorizes mayor to sign certain lease agreement (Special)
14801	Amends Ord. 8064, classification and compensation plan (Special)
14802	Rezone (Special)
14803	Amends § 12.88.010, traffic schedules (12.88)
14804	Permits use of Sue Young Park (Special)
14805	Amends Chs. 15.12 and 15.13, public services (15.12, 15.13)
14806	Easement vacation (Special)
14807	Authorizes mayor to sign special warranty deed (Special)
14808	Easement vacation (Special)
14809	Permits use of Frank Delgado Park (Special)
14810	Street and subdivision vacation (Special)
14811	Grants special privilege (Special)
14812	Authorizes mayor to sign special warranty deed (Special)
14813	Rezone (Special)
14814	Rezone (Special)
14815	Rezone (Special)
14815	Rezone (Special)
14816	Rezone (Special)
14817	Designates reinvestment zone KK (Special)
14818	Designates reinvestment zone LL (Special)
14819	Designates reinvestment zone MM (Special)
14820	Designates reinvestment zone NN (Special)
14821	Rezone (Special)
14822	Amends § 12.88.040, traffic schedules (12.88)
14823	Permits use of Zaragoza Park (Special)
14824	Permits use of Veterans Park (Special)

Ordinance Number	
14825	Permits use of Memorial Park (Special)
14826	Amends Ords. 10873, 12221, 12476 and 12636, foreign trade zone fees (Special)
14827	Authorizes mayor to sign special warranty deed (Special)
14828	Authorizes mayor to sign agreement for use of Carolina Recreation Center (Special)
14829	Rezone (Special)
14830	Rezone (Special)
14831	Grants special privilege (Special)
14832	Grants special privilege (Special)
14833	Grants special privilege (Special)
14834	Easement vacation (Special)
14835	Easement vacation (Special)
14836	Establishes development coordinating committee (Repealed by 16802)
14837	Rezone (Special)
14838	Rezone (Special)
14839	Rezone (Special)
14840	Rezone (Special)
14841	Amends § 13.20.040; repeals § 13.20.050, street and sidewalk use regulations (13.20)
14842	Amends § 13.24.010, parks and recreation areas (13.24)
14843	Amends § 9.12.010, food handling (9.12)
14844	Amends § 12.08.220, vehicle impoundment (12.08)
14845	Amends § 12.44.090, stopping standing and parking (12.44)
14846	Amends § 5.100.095, vendors and solicitors (5.100)
14847	Adds Ch. 12.46, mobile food vendors (12.46)
14848	Adds § 9.12.040(C), food handling (9.12)
14849	Grants special privilege (Special)
14850	Permits use of Mission Hills Park (Special)
14851	Approves specific study area (Special)
14852	Adds §§ 20.08.204, 20.10.040(X), 20.12.040(W), 20.14.040(W), 20.20.040(U), 20.22.040(T), 20.24.040(5), 20.26.040(P), 20.28.040(5), 20.30.040(5), 20.52.060(I), 20.53.050(C), 20.54.060(K), 20.56.060(K) and 20.61.060(P), zoning (Repealed by 16653)
14853	Adds §§ 20.08.205, 20.10.040(Y), 20.12.040(X), 20.14.040(X), 20.20.040(V), 20.22.040(U), 20.24.040(T), 20.26.040(Q), 20.28.040(T), 20.30.040(T), 20.52.060(J), 20.53.050(D), 20.54.060(L), 20.56.060(L) and 20.61.060(Q), zoning (Repealed by 16653)
14854	Rezone (Special)
14855	Authorizes mayor to sign special warranty deed conveying land (Special)
14856	Rezone (Special)
14857	Rezone (Special)
14858	Grants special permit (Special)
14859	Amends Ord. 8064, classification and compensation plan (Special)
14860	Permits use of Eastwood Album Park (Special)
14861	Permits use of Shawver Park Pavilion (Special)
14862	Amends § 2.44.040, courts (2.44)
14863	Permits use of Nations (Special)
14864	Street vacation (Special)
14865	Authorizes mayor to sign contract sale and warranty deed (Special)
14866	Amends § 12.88.040(J), parking (12.88)
14867	Amends § 12.88.030, parking (12.88)
14868	Amends § 12.88.010, parking (12.88)

Ordinance Number	
14869	Rezone (Special)
14870	Grants special privilege (Special) rentals
14871	Amends § 15.08.120, street (15.08)
14872	Rezone (Special)
14873	Rezone (Special)
14874	Rezone (Special)
14875	Rezone (Special)
14876	Amends § 12.88.030, parking (12.88)
14877	Amends § 12.88.010, parking (12.88)
14878	Amends Ch. 9.50, public and workplace smoking restrictions (9.50)
14879	Designates reinvestment zone OO (Special)
14880	Repeals and reestablishes arts resources department and board; repeals Ords. 6163, 9980, 11533 and 11903 (Repealed by 16196)
14881	Rezone (Special)
14882	Rezone (Special)
14883	Rezone (Special)
14884	Rezone (Special)
14885	Permits use of Shinaut Park (Special)
14886	Rezone (Special)
14887	Grants special privilege (Special)
14888	Permits use of Marty Robbins Ball Fields (Special)
14889	Permits use of Veterans Park Pavilion (Special)
14890	Amends § 12.88.030, parking (12.88)
14891	Rezone (Special)
14892	Rezone (Special)
14893	Authorizes mayor to sign contract of warranty deed (Special)
14894	Grants special permit SU-01006 (Special)
14895	Permits use of Marty Robbins Park (Special)
14896	Amends Ord. 8064, classification and compensation plan (Special)
14897	Grants special permit SU-01004 (Special)
14898	Grants special permit SU-01005 (Special)
14899	Rezone (Special)
14900	Rezone (Special)
14901	Permits use of Galatzan Park (Special)
14902	Permits use of Tom Lea Upper Park (Special)
14903	Amends Ord. 014116, building and zoning advisory committee (Special)
14904	Amends § 12.88.030, traffic schedule (12.88)
14905	Amends § 12.88.030, traffic schedule (12.88)
14906	Grants special privilege (Special)
14907	Amends Ord. 8064, classification and compensation plan (Special)
14908	Amends Ord. 8064, classification and compensation plan (Special)
14909	Authorizes mayor to sign special warranty deed conveying land (Special)
14910	Rezone (Special)
14911	Grants special permit SU-01011 (Special)
14912	Grants special permit SU-01012 (Special)
14913	Amends §§ 20.16.040, 20.18.060, 20.32.040, 20.34.040, 20.36.040, 20.38.040, 20.40.040, 20.42.040, 20.44.040, 20.45.041, 20.46.040, 20.48.040, 20.50.040, 20.58.040 and 20.60.050, neighborhood conservancy overlay designation (Repealed by 16653)

Ordinance Number	
14914	Rezone (Special)
14915	Grants special permit SU-01001 (Special)
14916	Rezone (Special)
14917	Rezone (Special)
14918	Rezone (Special)
14919	Rezone (Special)
14920	Permits use of Veterans Parks Pavilion (Special)
14921	Amends Ch. 9.52, fire prevention code (9.52)
14922	Permits use of Eastwood Album Park (Special)
14923	Permits use of Marwood Park (Special)
14924	Bond issuance (Special)
14925	Creates districting commission for 2001 (Special)
14926	Amends Ord. 8064, classification and compensation plan (Special)
14927	Repeals and replaces § 2.40.020, admission fees (2.40)
14928	Rezone (Special)
14929	Grants special permit SU-01010 (Special)
14930	Amends § 12.08.220(D), impound vehicle storage fee (12.08)
14931	Amends § 12.16.010; repeals and replaces § 12.16.030, accident reports (12.16)
14932	Grant special privilege (Special)
14933	Rezone (Special)
14934	Rezone (Special)
14935	Rezone (Special)
14936	Rezone (Special)
14937	Permits use of Marwood Park (Special)
14938	Permits use of Shawver Pavilion (Special)
14939	Permits use of Houston Park (Special)
14940	Authorizes lease of Wellington Chew Senior Citizen Center (Special)
14941	Authorizes lease of Washington Park Senior Citizen Center (Special)
14942	Amends Ord. 014836, development coordinating committee (Special)
14943	Amends § 9.04.420, solid waste disposal fee (9.04)
14944	Amends §§ 2.06.010 and 2.06.020, bond overview advisory committee (Repealed by 16933)
14945	2002 tax levy (Special)
14946	Grants special permit SU-01008 (Special)
14947	Grants special permit SU-01014 (Special)
14948	Rezone (Special)
14949	Rezone (Special)
14950	Permits use of Frank Delgado Park (Special)
14951	Amends § 12.88.030, parking schedule (12.88)
14952	Amends § 12.88.030, parking schedule (12.88)
14953	Amends § 12.88.030, parking schedule (12.88)
14954	Amends § 12.88.150, speed limits (12.88)
14955	Amends § 12.44.180(B)(9), parking regulation (12.44)
14956	Amends Ord. 8064, classification and compensation plan (Special)
14957	Amends § 12.88.030, parking schedule (12.88)
14958	Rezone (Special)
14959	Amends § 15.08.120(B), roadway encroachment (15.08)
14960	Grants special privilege (Special)
14961	Grants special privilege (Special)

Ordinance Number	
14962	Grants franchise to Sun City Ambulance, Inc. (Special)
14963	Amends § 12.88.150, speed limits (12.88)
14964	Amends § 12.88.010, one-way streets (12.88)
14965	Grants special permit SU-01015 (Special)
14966	Rezone (Special)
14967	Amends Ch. 9.12, ground meat advisory (Special)
14968	Credit card payment and fees (Special)
14969	Amends classification and compensation plan (Special)
14970	Rezone (Special)
14971	Rezone (Special)
14972	Authorizes mayor to execute quitclaim deed for tract (Special)
14973	Adopts order concluding Time Warner rate request incomplete (Special)
14974	Amends § 12.88.030, prohibited parking (12.88)
14975	Amends § 12.88.040, prohibited parking (12.88)
14976	Amends § 12.88.210, prohibited commercial parking (12.88)
14977	Rezone (Special)
14978	Motor vehicle taxation (Special)
14979	Amends § 13.24.200, parks and recreation (13.24)
14980	Rezone (Special)
14981	Foreign trade zone fees and user agreements (Special)
14982	Amends § 12.88.150, speed limits (12.88)
14983	Amends § 12.88.150, speed limits (12.88)
14984	Grants special privilege to El Paso Convention and Performing Arts Center (Special)
14985	Grants special permit SU-01013 (Special)
14986	Amends §§ 20.04.030, 20.04.040, 20.04.050, 20.04.150(H), (I) and (J), 20.54.080(C)(1), 20.54.080(C)(1) and (E) and 20.56.080, site development plans (Repealed by 16653)
14987	Rezone (Special)
14988	Rezone (Special)
14989	Rezone (Special)
14990	Grants special permit SU-01016 (Special)
14991	Tax levy (Special)
14992	Authorizes easement of traffic signal (Special)
14993	Bond issuance (Special)
14994	Grants franchise renewal for Life Ambulance Service, Inc. (Special)
14995	Authorizes mayor to sign quitclaim deed (Special)
14996	Creates Tax Increment Finance District No. Two (Special)
14997	Amends classification and compensation plan (Special)
14998	Establishes lease for Dudley Field (Special)
14999	Creates Tax Increment Finance District No. 3 (Special)
15000	Rezone (Special)
15001	Grants special privilege to Primera Iglesia Bautista Mexicana, Inc. (Special)
15002	Rezone (Special)
15003	Lot vacation (Special)
15004	Amends classification and compensation plan (Special)
15005	Amends classification and compensation plan (Special)
15006	Amends Ords. 12909, 12141 and 10739, library fines (Special)

Ordinance Number	
15007	Amends Appendix A of Ch. 14.24, airline cost recovery rates (14.24)
15008	Amends Ord. 014836, development coordinating committee (Repealed by 16802)
15009	Grants special privilege to Central Business Association of El Paso, Inc. (Special)
15010	Amends classification and compensation plan (Special)
15011	Amends classification and compensation plan (Special)
15012	Amends classification and compensation plan (Special)
15013	Street vacation (Special)
15014	Amends §§ 18.02.108.2.1, 18.02.108.3.1, 18.02.108.4.1 and 18.02.108.5.1, building and construction (18.02)
15015	Water and sewer revenue bonds (Special)
15016	Adds § 10.12.050, possession of alcohol in public (10.12)
15017	Adds §§ 20.52.210, 20.54.085 and 20.56.210; amends § 20.52.165, zoning (Repealed by 16653)
15018	Amends § 15.08.120(B)(1)(e)(3)(d), special privilege license (15.08)
15019	Amends Ord. 8064, classification and compensation plan (Special)
15020	Permits Texas Amateur Wrestling to use Carolina Recreation Center (Special)
15021	Rezone (Special)
15022	Rezone (Special)
15023	Rezone (Special)
15024	Rezone (Special)
15025	Rezone (Special)
15026	Rezone (Special)
15027	Rezone (Special)
15028	Amends § 12.88.150, speed limits (12.88)
15029	Permits El Paso Golden Gloves to use Carolina Recreation Center (Special)
15030	Amends § 2.92.050, ethics review commission (2.92)
15031	Extends moratorium on construction of certain off-premise signs (Special)
15032	Amends Ord. 8064, classification and compensation plan (Special)
15033	Adds §§ 18.02.108.2.9, 18.02.108.3.11, 18.02.108.4.4 and 18.02.108.5.2, identification of apprentices (18.02)
15034	Amends §§ 18.02.108.2.1, 18.02.108.3.1, 18.02.108.4.1 and 18.02.18.5.1, building and construction (18.02)
15035	Amends Ord. 8064, classification and compensation plan (Special)
15036	Authorizes mayor to sign Release of Right of Entry and Possession (Special)
15037	Authorizes mayor to sign Right of Entry and Possession (Special)
15038	Amends Ord. 8064, classification and compensation plan (Special)
15039	Amends § 12.44.180(B), vehicles and traffic (12.44)
15040	Grants special privilege to Central Business Association (Special)
15041	Grants Special Permit No. SU-01018 (Special)
15042	Grants Special Permit No. SU-01021 (Special)
15043	Rezone (Special)
15044	Rezone (Special)
15045	Rezone (Special)
15046	Rezone (Special)
15047	Rezone (Special)
15048	Rezone (Special)
15049	Rezone (Special)

Ordinance Number	
15050	Grants special privilege for food-vending concession in downtown area (Special)
15051	Amends Ords. 14968, fees and court costs (Special)
15052	Rezone (Special)
15053	Amends Ord. 8064, classification and compensation plan (Special)
15054	Amends Ord. 8064, classification and compensation plan (Special)
15055	Alley vacation (Special)
15056	Adds § 18.02.110, city facility displays (18.02)
15057	Grants special privilege to Spelling Television (Special)
15058	Permits Cielo Vista Optimist Club to use Shawver Park and Pavillion (Special)
15059	Amends Ord. 8064, classification and compensation plan (Special)
15060	Amends Ord. 8064, classification and compensation plan (Special)
15061	Rezone (Special)
15062	Rezone (Special)
15063	Rezone (Special)
15064	Rezone (Special)
15065	Permits Caesar Juarez to use Ponsford Park (Special)
15066	Authorizes mayor to sign Quitclaim Deed (Special)
15067	Permits Westside Community Church to use Frank Delgado Park (Special)
15068	Adopts modifications to 2025 Proposed Thoroughfare System (Special)
15069	Grants Special Permit No. SU-01009 (Special)
15070	Grants Special Permit No. SU-01022 (Special)
15071	Permits The Humane Society to use Eastwood Album Park (Special)
15072	Permits Letitia Morre to use Madeline Park (Special)
15073	Provides for art in municipal places (Repealed by 16324)
15074	Grants special privilege to IEK # 2 L.P. (Special)
15075	Rezone (Special)
15076	Adds Ch. 12.54, towing regulation and fees (12.54)
15077	Grants Paul Berube a non-exclusive franchise for litter receptacles (Special)
15078	Grant special privilege to El Paso Heritage Week Festival (Special)
15079	Grants special privilege to El Paso Heritage Week Festival (Special)
15080	Authorizes mayor to sign a Deed Without Warranty (Special)
15081	Grants Special Permit No. SU-02002 (Special)
15082	Amends Ord. 8064, classification and compensation plan (Special)
15083	Amends Ord. 8065, civil service rules and regulations (Special)
15084	Amends Ord. 8065, civil service rules and regulations (Special)
15085	Amends §§ 9.12.010 and 9.12.070, food and food handling establishments (9.12)
15086	Rezone (Special)
15087	Amends Ord. 8064, classification and compensation plan (Special)
15088	Permits Richard Campbell to use Paul Harvey Park (Special)
15089	Permits Dial America to use Eastwood Album Park (Special)
15090	Amends § 12.88.030, vehicles and traffic (12.88)

Ordinance Number	
15091	Amends § 12.88.030, vehicles and traffic (12.88)
15092	Amends § 12.88.030, vehicles and traffic (12.88)
15093	Grants special privilege to Six Flags Events (Special)
15094	Amends Ord. 8064, classification and compensation plan (Special)
15095	Amends Ord. 8064, classification and compensation plan (Special)
15096	Amends Ord. 8809, abolishes property damage review boards (Special)
15097	Grants Special Permit No. SU-01020 (Special)
15098	Rezone (Special)
15099	Rezone (Special)
15100	Grants Special Permit No. SU-02001 (Special)
15101	Rezone (Special)
15102	Amends Ord. 014781, moratorium extension (Special)
15103	Provides for issuance of General Obligation Refunding Bonds (Special)
15104	Permits Jesus Ontiveros to use Eastwood Album Park (Special)
15105	Amends Ord. 011761, zoning (Special)
15106	Amends §§ 15.13.030, 15.13.120, and 15.13.130, water conservation (15.13)
15107	Permits Issaias Morones to use Vista Del Sol Park (Special)
15108	Creates the Greater El Paso Civic, Convention and Tourism Advisory Board (Special)
15109	Rezone (Special)
15110	Adds Ch. 12.26, cruising (12.26)
15111	Authorizes mayor to sign Special Warranty Deed (Special)
15112	Amends Ord. 8064, classification and compensation plan (Special)
15113	Adds § 13.20.110, bus bench franchises (Repealed by 16792)
15114	Permits Hermosa Church to use Borderland Park (Special)
15115	Grants special privilege to KTSM-News Channel 9 (Special)
15116	Grants special privilege to Sonia E. Cobos (Special)
15117	Amends Ord. 15002, Northeast El Paso Enterprise Zone (Special)
15118	Rezone (Special)
15119	Grants special permit SU-01007 (Special)
15120	Rezone (Special)
15121	Rezone (Special)
15122	Grants special permit SU-02005 (Special)
15123	Grants special permit SU-02004 (Special)
15124	Grants special permit SU-02003 (Special)
15125	Amends § 12.88.150(C), speed limits (12.88)
15126	Amends Ord. 8064, classification and compensation plan (Special)
15127	Amends Ord. 8064, classification and compensation plan (Special)
15128	Amends Ord. 8064, classification and compensation plan (Special)
15129	Amends Ord. 8064, classification and compensation plan (Special)
15130	Rezone (Special)
15131	Rezone (Special)
15132	Grants special permit SU-02008 (Special)
15133	Rezone (Special)
15134	Rezone (Special)
15135	Grants special permit SU-02006 (Special)
15136	Permits Harry R. Field to use Memorial Park (Special)
15137	Grants special privilege to Regent Communications (Special)

Ordinance Number	
15138	Amends §§ 20.02.602, 20.66.080, 20.66.090(C), 20.66.100(E), 20.66.130(F), 2.66.190, 20.66.200, 20.66.210, 20.66.220 and 20.66.230, zoning (Repealed by 16653)
15139	Permits El Paso High School Class of 1982 to use Madeline Park (Special)
15140	Grants special privilege to the Central Business Association of El Paso, Inc. (Special)
15141	Grants special permit to Juan C. Brun (Special)
15142	Amends § 12.88.200, parking restrictions (12.88)
15143	Amends § 12.44.180(B)(21), parking regulations (12.44)
15144	Rezone (Special)
15145	Permits Lourdes Juarez to use Eastwood Album Park (Special)
15146	Permits Westside Community Church to use Park Hills Park (Special)
15147	Permits Westside Community Church to use Frank Delgado Park (Special)
15148	Repeals Ord. 15094, classification and compensation plan (Special)
15149	Amends Ord. 8064, classification and compensation plan (Special)
15150	Rezone (Special)
15151	Permits Marisol Marquez to use Arlington Park (Special)
15152	Alley vacation (Special)
15153	Amends Ord. 8064, classification and compensation plan (Special)
15154	Amends Ord. 8064, classification and compensation plan (Special)
15155	Amends Ord. 8064, classification and compensation plan (Special)
15156	Authorizes mayor to sign Lease Agreement (Special)
15157	Amends §§ 12.56.010, 12.56.020, 12.56.030, 12.56.040, 12.56.050, 12.56.060, 12.56.070, 12.56.080, 12.56.090, 12.56.100 and 12.56.110, parking meters; repeals § 12.08.130, meter maids (12.08, 12.56)
15158	Permits Veronica Valverde to use Memorial Park (Special)
15159	Adds Ch. 2.30, building board of appeals (2.30)
15160	Adds Ch. 2.32, plumbing and HVAC board of appeals (Repealed by 15962)
15161	Adds Ch. 2.34, electrical board of appeals (Repealed by 15962)
15162	Amends § 9.52.030(N), board of appeals (9.52)
15163	Repeals § 18.02.150, board of appeals (18.20)
15164	Amends § 18.20.109.1.8, TAS plan review fees (18.20)
15165	Adds § 18.08.285, building code (18.08)
15166	Amends § 18.10.080, residential code (18.10)
15167	Amends Ords. 15006, 12909, 12141, and 10739, library fees (Special)
15168	Rezone (Special)
15169	Grants special permit SU-02010 (Special)
15170	Amends § 20.44.090, off-street parking and loading standards (Repealed by 16653)
15171	Amends § 12.88.150, speed limits (12.88)
15172	Amends § 12.88.150, speed limits (12.88)
15173	Amends § 12.88.150, speed limits (12.88)

Ordinance Number	
15174	Amends § 2.40.020, fees (2.40)
15175	Rezone (Special)
15176	Rezone (Special)
15177	Rezone (Special)
15178	Amends Ord. 8064, classification and compensation plan (Special)
15179	Grants Special privilege to Sun City Cab Company (Special)
15180	Grants special privilege to Central Business Association of El Paso, Inc. (Special)
15181	Amends § 13.24.200, rental rates and uses fees authorization (13.24)
15182	Amends § 2.40.010, museum department (2.40)
15183	Adds §§ 2.44.010(E) and 2.44.040(E), courts (2.44)
15184	Amends Ord. 11479, financial and administrative services department (Repealed by 15878)
15185	Creates building and planning services department (Repealed by 15876)
15186	Creates municipal services department (Repealed by 15877)
15187	Creates community services department (Repealed by 15879)
15188	Changes various terms throughout codebook (13.08, 18.02, 18.52)
15189	Changes various terms throughout codebook (9.04, 13.08, 18.02, 18.60)
15190	Amends Ord. 8064, classification and compensation (Special)
15191	Amends Ord. 8064, classification and compensation (Special)
15192	Changes various terms throughout codebook (Not codified)
15193	Changes various terms throughout codebook (Not codified)
15194	Amends Ord. 8065, civil service rules and regulations (Special)
15195	Amends Ord. 8065, civil service rules and regulations (Special)
15196	Amends Ord. 8064, classification and compensation plan (Special)
15197	Amends Ord. 8064, classification and compensation plan (Special)
15198	Amends Ord. 8064, classification and compensation plan (Special)
15199	Amends Ord. 8064, classification and compensation plan (Special)
15200	Amends Ord. 8064, classification and compensation plan (Special)
15201	Amends Ord. 8064, classification and compensation plan (Special)
15202	Amends Ord. 8064, classification and compensation plan (Special)
15203	Amends Ord. 8064, classification and compensation plan (Special)
15204	Amends Ord. 8064, classification and compensation plan (Special)
15205	Amends Ord. 8064, classification and compensation plan (Special)
15206	Amends Ord. 8064, classification and compensation plan (Special)
15207	Amends Ord. 8064, classification and compensation plan (Special)
15208	Amends Ord. 8064, classification and compensation plan (Special)
15209	Amends Ord. 8064, classification and compensation plan (Special)
15210	Amends Ord. 8064, classification and compensation plan (Special)
15211	Amends Ord. 8064, classification and compensation plan (Special)
15212	Amends Ord. 8064, classification and compensation plan (Special)
15213	Amends Ord. 8064, classification and compensation plan (Special)
15214	Amends Ord. 8064, classification and compensation plan (Special)
15215	Amends Ord. 8064, classification and compensation plan (Special)

Ordinance Number	
15216	Repeals Ord. 12854, communications department (Repealer)
15217	Establishes functions of information technology department (Special)
15218	Permits Pueblo Nuevo Community Church to use Dick Shinaut Park (Special)
15219	Amends §§ 20.04.150, 20.08.201(c), and 20.64.180, zoning (Repealed by 16653)
15220	Amends §§ 14.08.080, 14.08.090, and 14.08.110, airport zoning (14.08)
15221	Amends § 20.08.140(D)(1), zoning (Repealed by 16653)
15222	Amends § 15.08.120, special privilege licenses (15.08)
15223	Amends §§ 20.04.060 and 20.04.070, zoning (Repealed by 16653)
15224	Amends §§ 20.04.551.1 and 20.64.100, zoning (Repealed by 16653)
15225	Amends § 5.60.020, mobile home sales (5.60)
15226	Amends § 2.16.060, zoning board of appeals administration (Repealed by 16888)
15227	Amends § 20.02.909, zoning administrator (Repealed by 16653)
15228	Amends Ord. 8064, classification and compensation plan (Special)
15229	Rezone (Special)
15230	Amends § 12.44.180(B)(16), vehicles and traffic (12.44)
15231	Amends § 12.88.030, vehicles and traffic (12.88)
15232	Adds § 6.16.090(A), taxicab permit fees (6.16)
15233	Amends §§ 3.12.020 and 3.12.060(C), motel room tax (3.12)
15234	Tax levy (Special)
15235	Amends § 12.88.030, vehicles and traffic (12.88)
15236	Amends § 12.88.040(J), vehicles and traffic (12.88)
15237	Adds Ch. 5.32, public swimming pool licenses (5.32)
15238	Repeals and replaces Ch. 9.48, swimming pools and spas (9.48)
15239	Amends Ord. 15184, financial and administrative services department (Repealed by 15878)
15240	Permits Sylvia Gomez to use Suffolk Park (Special)
15241	Rezone (Special)
15242	Grants special permit SU-02007 (Special)
15243	Rezone (Special)
15245	Amends Ord. 15073, art in municipal places (Repealed by 16324)
15246	Bond issuance (Special)
15247	Rezone (Special)
15248	Grants special permit SU-02013 (Special)
15249	Amends § 12.88.130, parking meter zones (12.88)
15250	Amends Ord. 8064, classification and compensation plan (Special)
15251	Amends Ord. 8064, classification and compensation plan (Special)
15252	Amends Ord. 8064, classification and compensation plan (Special)

Ordinance Number	
15253	Amends Ord. 8064, classification and compensation plan (Special)
15254	Amends Ord. 8064, classification and compensation plan (Special)
15255	Grants special privilege to EEC Investments, Inc. (Special)
15256	Grants special privilege authorizing temporary street closure (Special)
15257	Grants special privilege to the Central Business Association of El Paso, Inc. (Special)
15258	Rezone (Special)
15259	Rezone (Special)
15260	Amends Ch. 5.24, building permits and inspections director (5.24)
15261	Amends Chs. 13.28 and 13.32, building permits and inspections director (13.28, 13.32)
15262	Amends Ord. 8064, classification and compensation plan (Special)
15263	Amends Ord. 8064, classification and compensation plan (Special)
15264	Amends Ord. 10397, establishing procedures for city council meetings (Special)
15265	Authorizes mayor to execute quitclaim deed (Special)
15266	Authorizes mayor to execute quitclaim deed (Special)
15267	Rezone (Special)
15268	Grants special permit SU-02015 (Special)
15269	Amends § 12.88.030, prohibited parking (12.88)
15270	Adds § 12.88.150(G), speed limits (12.88)
15271	Amends § 12.88.040(H)(1), prohibited parking (12.88)
15272	Grants special permit SU-02017 (Special)
15273	Grants special permit SU-02018 (Special)
15274	Rezone (Special)
15275	Amends Ord. 8064, classification and compensation plan (Special)
15276	Permits Marinaha to use Yucca Park (Special)
15277	Authorizes mayor to sign special warranty deed (Special)
15278	Amends § 12.88.030, prohibited parking (12.88)
15279	Amends § 12.88.030, prohibited parking (12.88)
15280	Rezone (Special)
15281	Amends Ord. 11439, lease agreement (Special)
15282	Rezone (Special)
15283	Grants special permit SU-02016 (Special)
15284	Amends Ord. 8064, classification and compensation plan (Special)
15285	Amends Ord. 8064, classification and compensation plan (Special)
15286	Amends Ord. 8064, classification and compensation plan (Special)
15287	Amends Ord. 8064, classification and compensation plan (Special)
15288	Amends Ord. 8064, classification and compensation plan (Special)
15289	Amends Ord. 8064, classification and compensation plan (Special)
15290	Amends Ord. 8064, classification and compensation plan (Special)
15291	Amends Ord. 8064, classification and compensation plan (Special)

Ordinance Number	
15292	Amends Ord. 8064, classification and compensation plan (Special)
15293	Adds §§ 2.92.080 and 2.92.090; amends §§ 2.92.010, 2.92.020, 2.92.030, 2.92.040, 2.92.050, 2.92.060 and 2.92.070; renames Ch. 2.92; repeals § 2.92.052, ethics (2.92)
15294	Authorizes lease agreement (Special)
15295	Grants special privilege to the Central Business Association of El Paso, Inc. (Special)
15296	Grants special privilege to Joe Hernandez (Special)
15297	Rezone (Special)
15298	Grants special permit SU-02019 (Special)
15299	Rezone (Special)
15300	Authorizes lease agreement (Special)
15301	Authorizes mayor to sign agreement with Keystone Heritage Park, Inc. (Special)
15302	Amends Ord. 14996, tax increment financing district (Special)
15303	Amends Ord. 14996, tax increment financing district (Special)
15304	Grants special permit SU-02020 (Special)
15305	Rezone (Special)
15306	Rezone (Special)
15307	Grants special permit SU-02014 (Special)
15308	Rezone (Special)
15309	Rezone (Special)
15310	Rezone (Special)
15311	Street vacation (Special)
15312	Amends Ord. 8064, classification and compensation plan (Special)
15313	Amends Ord. 8064, classification and compensation plan (Special)
15314	Authorizes mayor to sign agreement with El Paso Golden Gloves Association (Special)
15315	Street vacation (Special)
15316	Grants permission to Southern Union Company to transfer to ONEOK, Inc. (Special)
15317	Grants special permit SP-02022 (Special)
15318	Rezone (Special)
15319	Rezone (Special)
15320	Amends Ord. 8064, classification and compensation plan (Special)
15321	Amends Ord. 8064, classification and compensation plan (Special)
15322	Amends Ord. 8064, classification and compensation plan (Special)
15323	Adds § 12.88.150(F), speed limits (12.88)
15330	Rezone (Special)
15331	Rezone (Special)
15332	Rezone (Special)
15333	Rezone (Special)
15334	Rezone (Special)
15335	Rezone (Special)
15336	Rezone (Special)
15337	Rezone (Special)
15346	Amends § 18.08.050, building code (18.08)
15347	Amends §§ 18.02.101.5.1 and 18.02.101.5.2, existing buildings (18.02)
15348	Grants renewal of franchise (Special)
15349	Grants special permit SU-02026 (Special)
15350	Grants special permit SU-02027 (Special)

15351	Rezone (Special)
15352	Grants special permit SU-02029 (Special)
15353	Adds §§ 12.44.180(B)(29); amends § 12.44.180(B)(27)
15354	Amends Ord. 14759, special privilege (Special)
15355	Grants special privilege to the Central Business Association of El Paso, Inc. (Special)
15356	Amends Ord. 8064, classification and compensation plan (Special)
15357	Amends Ord. 8064, classification and compensation plan (Special)
15358	Adopts modifications to 2025 Proposed Thoroughfare System (Special)
15359	2003 General Election (Special)
15368	Tax levy (Special)
15369	Permits El Paso Diabetes Association to use Shawver Park and Pavillion (Special)
15370	Amends § 12.88.060, parking (12.88)
15371	Rezone (Special)
15372	Grants special permit to SU-02030 (Special)
15373	Grants special privilege to DAT Production, Inc. (Special)
15374	Amends Ord. 014787 (Special)
15375	Amends § 15.13.140, drought and water emergency management response plan (15.13)
15376	Permits Westside Community Church to use Delgado Park (Special)
15377	Rezone (Special)
15378	Grants special permit SU-02023 (Special)
15379	Grants special permit SU-02024 (Special)
15380	Rezone (Special)
15381	Grants special permit SU-02032 (Special)
15382	Rezone (Special)
15383	Permits Humane Society of El Paso to use Album Park (Special)
15384	Amends Ord. 8064, classification and compensation plan (Special)
15385	Amends Ord. 8064, classification and compensation plan (Special)
15386	Amends Ord. 8064, classification and compensation plan (Special)
15387	Amends Ord. 8064, classification and compensation plan (Special)
15388	Amends Ord. 8064, classification and compensation plan (Special)
15389	Amends Ord. 8064, classification and compensation plan (Special)
15390	Amends Ord. 8064, classification and compensation plan (Special)
15391	Amends Ord. 8064, classification and compensation plan (Special)
15392	Amends Ord. 8064, classification and compensation plan (Special)
15393	Amends § 12.88.040 (J), parking (12.88)
15394	Amends § 12.88.030, parking (12.88)
15395	Amends § 12.88.030, parking (12.88)
15396	Amends § 12.88.030, parking (12.88)
15397	Amends § 12.88.150, speed limits (12.88)
15398	Amends § 12.88.150, speed limits (12.88)
15399	Amends § 12.88.150, speed limits (12.88)
15400	Amends § 12.88.030, parking (12.88)
15401	Easement vacation (Special)
15402	Easement vacation (Special)

Ordinance Number	
15403	Amends Ord. 15365 (Repealed by 15586)
15404	Creates Water Conservation Advisory Board (Repealed by 16249)
15405	Adds § 2.44.100, juror reimbursement (2.44)
15406	Permits Texas Avenue Heritage Association to use Jacinto Plaza (Special)
15407	Permits Dr. Gene Finke to use Borderland Park (Special)
15408	Permits Dr. Gene Finke to use Frank Delgado Park (Special)
15409	Authorizes mayor to execute a quitclaim deed (Special)
15410	Amends § 10.16.010, discrimination in places of public accommodation declared unlawful (10.16)
15411	Amends § 14.16.050, abandoned or lost property (14.16)
15412	Amends Ord. 8064, classification and compensation plan (Special)
15413	Amends Ord. 8064, classification and compensation plan (Special)
15414	Amends § 13.24.200, rental rates and user fees authorization (13.24)
15415	Amends Ords. 010873, 012221, 012476, 012636, 014826 (Special)
15416	Amends § 14.24.010, commercial air carriers rates and charges (14.24)
15417	Permits the city's police and parks and recreation departments to use McKelligan Canyon Park (Special)
15418	Rezone (Special)
15419	Rezone (Special)
15420	Rezone (Special)
15421	Amends Ord. 014891 (Special)
15422	Amends Ord. 15359 (Special)
15423	Grants special permit SU-03001 (Special)
15424	Rezone (Special)
15425	Rezone (Special)
15426	Rezone (Special)
15427	Rezone (Special)
15428	Rezone (Special)
15429	Grants special privilege to the El Paso Heritage Week Festival (Special)
15430	Rezone (Special)
15431	Rezone (Special)
15432	Grants special permit SU-03002 (Special)
15433	Grants special privilege to Clear Channel Radio (Special)
15434	Amends Ord. 8064, classification and compensation plan (Special)
15435	Amends Ord. 8064, classification and compensation plan (Special)
15436	Amends Ord. 8064, classification and compensation plan (Special)
15437	Amends Ord. 8064, classification and compensation plan (Special)
15438	Amends Ord. 8064, classification and compensation plan (Special)
15439	Amends Ord. 8064, classification and compensation plan (Special)
15440	Permits Laura Griffin to use Memorial Park (Special)
15441	Rezone (Special)
15442	Amends § 12.88.150, speed limits (12.88)
15443	Amends § 12.88.150, speed limits (12.88)
15444	Amends § 12.88.030, parking (12.88)
15445	Amends Ord. 8064, classification and compensation plan (Special)
15446	Amends Ord. 8064, classification and compensation plan (Special)
15447	Amends Ord. 8064, classification and compensation plan (Special)
15448	Amends Ord. 8064, classification and compensation plan (Special)

Ordinance Number	
15449	Grants special permit SU-03006 (Special)
15450	Rezone (Special)
15451	Amends § 12.88.150, speed limits (12.88)
15452	Rezone (Special)
15453	Grants special permit SU-03007 (Special)
15454	Rezone (Special)
15455	Rezone (Special)
15456	Rezone (Special)
15457	Permits Unitarian Universalist Community of El Paso to use Memorial Park (Special)
15458	Permits Texas Avenue Heritage Association to use San Jacinto Plaza (Special)
15459	Amends Ord. 8064, classification and compensation plan (Special)
15460	Amends Ord. 8064, classification and compensation plan (Special)
15461	Adds § 9.52.120(B)(1) and (T), explosives and fireworks (9.52)
15462	Grants special privilege to Regent Communications - El Paso (Special)
15463	Grants special privilege to Border Cab Company (Special)
15464	Grants special privilege authorizing temporary closure of portions of public rights-of-way (Special)
15465	Grants special permit SU-03008 (Special)
15466	Rezone (Special)
15467	Rezone (Special)
15468	Grants special permit SU-03009 (Special)
15469	Grants special permit SU-03014 (Special)
15470	Amends Ord. 8064, classification and compensation plan (Special)
15472	Amends Ord. 8065, civil service rules and regulations (Special)
15473	Utility easement vacation (Special)
15474	Repeals Ord. 14996 (Special)
15475	Repeals Ord. 14999 (Special)
15476	Rezone (Special)
15477	Grants special permit SU-03005 (Special)
15478	Grants special privilege to Central Business Association of El Paso, Inc. (Special)
15479	Amends §§ 2.16.050, special exceptions, and 2.16.060, administration (Repealed by 16888)
15480	Alley vacation (Special)
15481	Rezone (Special)
15482	Amends Ord. 8064, classification and compensation plan (Special)
15483	Amends Ord. 8064, classification and compensation plan (Special)
15484	Grants special permit SU-03013 (Special)
15485	Amends § 13.25.010, admission fees to zoo (13.25)
15486	Grants special privilege to Danny's Place (Special)
15487	Rezone (Special)
15488	Rezone (Special)
15489	Amends Ord. 8064, classification and compensation plan (Special)
15490	Rezone (Special)
15491	Permits Eric Armendariz to use Madeline Park (Special)
15492	Amends § 6.16.090(A) and (C), permit fees (6.16)
15493	Amends § 12.88.150, speed limits (12.88)
15494	Amends § 12.88.150, speed limits (12.88)
15495	Amends § 12.88.150, speed limits (12.88)

Ordinance Number	
15496	Amends § 12.88.150, speed limits (12.88)
15497	Amends § 12.88.150, speed limits (12.88)
15498	Amends § 12.88.180(A)(57) through (60), tow away zone (12.88)
15499	Amends Ord. 8064, classification and compensation plan (Special)
15500	Amends Ord. 8064, classification and compensation plan (Special)
15501	Amends Ord. 8064, classification and compensation plan (Special)
15502	Grants Chevron Products Company permission and authority to assign and transfer to Western Refining Company (Special)
15503	Rezone (Special)
15504	Rezone (Special)
15505	Rezone (Special)
15506	Rezone (Special)
15507	Rezone (Special)
15508	Amends Ords. 15365 and 15403, special election (Repealed by 15586)
15509	Amends Ord. 8064, classification and compensation plan (Special)
15510	Amends Ord. 8064, classification and compensation plan (Special)
15511	Amends Ord. 8064, classification and compensation plan (Special)
15512	Amends Ord. 8064, classification and compensation plan (Special)
15513	Amends Ord. 8064, classification and compensation plan (Special)
15514	Amends Ord. 8064, classification and compensation plan (Special)
15515	Amends Ord. 8064, classification and compensation plan (Special)
15516	Amends Ord. 8064, classification and compensation plan (Special)
15517	Rezone (Special)
15518	Grants special permit SU-03019 (Special)
15519	Rezone (Special)
15520	Adds §§ 20.02.575 and 20.66.350(L) performing arts center (Repealed by 16653)
15521	Rezone (Special)
15522	Rezone (Special)
15523	Grants special permit SU-03003 (Special)
15524	Street vacation (Special)
15525	Utility easement vacation (Special)
15526	Grants special privilege to MOF Incorporated (Special)
15527	Amends § 12.08.220(A), impounding vehicles (12.08)
15528	Adds § 12.54.050, towing fee studies (12.54)
15529	Amends Ord. 15185, duties of building and planning services department (Repealed by 15876)
15530	Amends Ord. 15187, quality of life services department (Repealed by 15879)
15531	Amends Ord. 15239, financial and administrative services department (Repealed by 15878)
15532	Bond issuance (Special)
15533	Bond issuance (Special)
15534	Bond issuance (Special)
15535	Rezone (Special)
15536	Rezone (Special)
15537	Rezone (Special)
15538	Rezone (Special)
15539	Creates information technology advisory board (Special)
15540	Grants special privilege to the El Paso Times (Special)
15541	Grants special permit SU-03021 (Special)

Ordinance Number	
15542	Grants special permit SU-03016 (Special)
15543	Authorizes mayor to execute a quitclaim deed (Special)
15544	Authorizes mayor to execute a quitclaim deed (Special)
15545	Authorizes mayor to execute a quitclaim deed (Special)
15546	Amends Ord. 15186, municipal services department (Repealed by 15877)
15547	Amends § 12.88.030, prohibited parking (12.88)
15548	Amends § 12.88.030, prohibited parking (12.88)
15549	Amends § 12.88.030, prohibited parking (12.88)
15550	Tax levy (Special)
15551	Amends Ord. 8064, classification and compensation plan (Special)
15552	Amends Ord. 8064, classification and compensation plan (Special)
15553	Amends Ord. 8064, classification and compensation plan (Special)
15554	Amends Ord. 8065, civil service rules and regulations (Special)
15555	Grants special permit SU-03017 (Special)
15556	Grants special privilege to Joe Hernandez (Special)
15557	Amends § 13.25.010, zoo admission fees (13.25)
15558	Bond issuance (Special)
15559	Right-of-way vacation (Special)
15560	Rezone (Special)
15561	Amends § 12.88.150, speed limits (12.88)
15562	Amends § 12.88.030, prohibited parking (12.88)
15563	Amends Ord. 8064, classification and compensation plan (Special)
15564	Authorizes joint use agreement (Special)
15565	Street vacation (Special)
15566	Grants special privilege to Houshany Shirazi and Bahram Razy (Special)
15567	Adds Ch. 5.54, sexually oriented businesses (Repealed by 16624)
15568	Authorizes lease agreement (Special)
15569	Rezone (Special)
15570	Rezone (Special)
15571	Grants special privilege to Ho Yun Lee (Special)
15572	Grants special privilege to the Central Business Association of El Paso, Inc. (Special)
15573	Amends Ord. 15532, bond issuance (Special)
15574	Amends Ord. 8064, classification and compensation plan (Special)
15575	Rezone (Special)
15576	Grants special privilege to Luis and Manuela Hernandez (Special)
15580	Amends §§ 6.16.200 and 6.16.230, taxicabs (6.16)
15581	Amends Ord. 14880, arts resources department and board (Repealed by 16196)
15582	Amends § 12.88.200, parking restrictions (12.88)
15583	Amends § 12.88.200, parking restrictions (12.88)
15584	Grants franchise renewal (Special)
15585	Amends Ord. 8064, classification and compensation plan (Special)
15586	Repeals Ords. 15365, 15403, and 15508, special election (Repealer)
15587	Grants special permit SU-03020 (Special)
15588	Amends § 12.88.150, speed limits (12.88)
15589	Amends Ord. 8064, classification and compensation plan (Special)

Ordinance Number	
15590	Amends Ord. 8064, classification and compensation plan (Special)
15591	Grants special privilege for a city-sponsored event (Special)
15592	Grants special privilege to the Ysleta Del Sur Pueblo (Special)
15593	Rezone (Special)
15594	Rezone (Special)
15595	Revises fire department medical services system fee schedule (Special)
15596	Amends § 13.24.200, rental rates and use fees authorization (13.24)
15597	Rezone (Special)
15598	Rezone (Special)
15599	Rezone (Special)
15600	Rezone (Special)
15601	Grants special permit ZON03-0029 (Special)
15602	Easement vacation (Special)
15603	Amends § 13.20.110, bus bench franchises (Repealed by 16792)
15604	Amends §§ 18.02.101.5 and 18.02.101.6, existing buildings (18.02)
15605	Amends § 18.08.020, building code adoption (18.08)
15606	Amends § 18.10.030, residential code administration (18.10)
15607	Adds new Ch. 18.28, existing building code (18.28)
15608	Rezone (Special)
15609	Rezone (Special)
15610	Special election (Special)
15611	Bond election (Special)
15612	Amends Ord. 8065, civil service rules and regulations (Special)
15613	Adds §§ 20.02.513 and 20.08.207 [20.08.207.5], mobile service units; amends § 20.64.110, use restrictions (Repealed by 16653)
15614	Grants special permit ZON03-00036 (Special)
15615	Grants non-exclusive franchise and Bench Ads of El Paso, Inc. (Repealed by 16793)
15616	Bond issuance (Special)
15617	Rezone (Special)
15618	Grants special permit ZON03-00042 (Special)
15619	Rezone (Special)
15620	Rezone (Special)
15621	Rezone (Special)
15622	Street vacation (Special)
15623	Amends § 12.88.150, speed limits (12.88)
15624	Grants renewal of franchise for Life Ambulance Service, Inc. (Special)
15625	Amends Ord. 8064, classification and compensation plan (Special)
15626	Amends Ord. 8064, classification and compensation plan (Special)
15627	Adds Ch. 2.77, tree board (2.77)
15628	Grants special privilege to HCA Health Science of Texas, Inc. (Special)
15629	Adds Ch. 2.102, neighborhood association recognition; amends §§ 20.04.390 and 20.04.520, zoning (2.102)
15630	Adds § 20.08.207, infill development; amends §§ 20.12.040, 20.14.040, 20.20.040, 20.22.040, 20.24.040, 20.28.040, 20.30.040 and 20.32.040, uses permitted by special permit (Repealed by 16653)
15631	Rezone (Special)
15632	Grants special permit ZON03-00037 (Special)
15633	Grants special permit ZON03-00050 (Special)
15634	Rezone (Special)

Ordinance Number	
15635	Grants special permit ZON03-00055 (Special)
15636	Rezone (Special)
15637	Grants special permit ZON03-00040 (Special)
15638	Rezone (Special)
15639	Grants special permit ZON03-00020 (Special)
15640	Alley vacation (Special)
15641	Grants special permit ZON03-00051 (Special)
15642	Repeals §§ 20.10.040(N), 20.10.080(3), 20.12.040(K), 20.12.080(2), 20.14.040(K), 20.14.080(3), 20.18.060(J), 20.20.040(H), 20.20.080(3), 20.22.040(G), 20.30.080(A), 20.32.040(J), 20.32.080(5), 20.36.040(E), 20.36.080(C), 20.38.040(A), 20.38.080(C), 20.40.040(A), 20.40.080(D), 20.42.040(A), 20.42.080(D), 20.52.060(D), 20.52.210(A), 20.54.060(F), 20.54.165(1), 20.56.060(F), 20.61.090(B) and 20.61.060(D); repeals § 20.56.165, zoning (Repealed by 16653)
15643	Grants special permit ZON03-00063 (Special)
15644	Grants special permit ZON03-00064 (Special)
15645	Rezone (Special)
15646	Amends §§ 5.24.020—5.24.040, 5.24.070—5.24.080, 5.24.130—5.24.150, charitable solicitations (5.24)
15647	Amends Ord. 014265, annexation (Special)
15648	Amends Ord. 8064, classification and compensation plan (Special)
15649	Amends Ord. 8064, classification and compensation plan (Special)
15650	Amends Ord. 8064, classification and compensation plan (Special)
15651	Amends Ord. 8064, classification and compensation plan (Special)
15652	Amends Ord. 8065, civil service rules and regulations (Special)
15653	Amends § 12.44.180, parking meter rentals (12.44)
15654	Amends § 15.12.050(A)(5), storm drain work (15.12)
15655	Amends §§ 9.52.120, 9.52.150 and Table A101, fire prevention code (9.52)
15656	Amends § 12.78.010, tolls for international bridges (12.78)
15657	Amends § 14.12.055, permit fee (14.12)
15658	Amends Ords. 15167, 15006, 12909, 12141 and 10739, library fines (Special)
15659	Amends §§ 6.12.050, 6.12.090, 6.16.070, 6.16.090(D), 6.16.120, 6.20.050, 6.28.040(A), 6.28.040(B), 6.32.030, 6.32.130 and 6.36.040(A), vehicles for hire (6.12, 6.16, 6.20, 6.28, 6.32, 6.36)
15660	Amends §§ 20.04.551 and 20.04.552; repeals and replaces §§ 20.04.551.2 and 20.04.551.3, zoning (Repealed by 16653)
15661	Amends § 2.16.060(A), zoning board of adjustment (Repealed by 16888)
15662	Amends § 13.08.030, excavation permit fee (13.08)
15663	Amends § 13.08.160, excavations (13.08)
15664	Amends § 2.44.090, court costs (2.44)

Ordinance Number	
15665	Amends lease with Humans Society (Special)
15666	Rezone (Special)
15668	Amends § 9.52.130, fire prevention code (9.52)
15669	Grants special privilege to Ascension Lutheran Church (Special)
15670	Approves Northwest Upper Valley plan (Special)
15671	Grants special permit ZON03-00039 (Special)
15672	Rezone (Special)
15673	Amends § 12.88.030, parking (12.88)
15674	Amends §§ 9.12.070, 9.12.125 and 9.12.210, food and food handling establishments (9.12)
15675	Bond issuance (Special)
15676	Grants special privilege to Beautiful Savior Evangelical Lutheran Church (Special)
15677	Grants special privilege to the Central Business Association (Special)
15678	Amends § 12.88.030, parking (12.88)
15679	Amends Ord. 8064, classification and compensation plan (Special)
15680	Amends Ord. 8064, classification and compensation plan (Special)
15681	Amends Ord. 8064, classification and compensation plan (Special)
15682	Amends Ord. 8064, classification and compensation plan (Special)
15683	Amends Ord. 8064, classification and compensation plan (Special)
15684	Amends Ord. 8064, classification and compensation plan (Special)
15685	Repeals Ord. 8276 (Special)
15686	Amends Ord. 014800, lease agreement (Special)
15687	Rezone (Special)
15688	Amends Ord. 9860, rezone (Special)
15689	Amends Ord. 9755, rezone (Special)
15690	Amends Ord. 14766 (Special)
15691	Rezone (Special)
15692	Street vacation (Special)
15693	Amends Ch. 2.88, selection procedures for architects, engineers and land surveyors (Repealed by 16230)
15694	Grants special privilege to John Geoske (Special)
15695	Authorizes mayor to sign special warranty deed (Special)
15696	Amends § 12.40.070, vehicles and traffic (12.40)
15697	Amends § 12.88.030, parking (12.88)
15698	Authorizes lease agreement (Special)
15699	Street vacation (Special)
15700	Street vacation (Special)
15701	Street vacation (Special)
15702	Authorizes joint use agreement (Special)
15703	Creates Brownfields Redevelopment Board (Repealed by 16986)
15704	Amends § 12.88.010, one-way streets (12.88)
15705	Authorizes contract of sale (Special)
15706	Rezone (Special)
15707	Rezone (Special)
15708	Rezone (Special)
15709	Approves Chihuahuita Neighborhood Association plan (Special)
15710	Amends § 13.25.010, zoo fees (13.25)

Ordinance Number	
15711	Permits Cielo Vista Optimist Club to use a portion of Shawyer Park and Pavilion (Special)
15712	Rezone (Special)
15713	Rezone (Special)
15714	Repeals and replaces Ch. 5.96, tattooing and body piercing licenses (5.96)
15715	Adds Ch. 9.32, tattooing and body piercing (9.32)
15716	Amends Ord. 8064, classification and compensation plan (Special)
15717	Amends Ord. 8064, classification and compensation plan (Special)
15718	Amends Ord. 8064, classification and compensation plan (Special)
15719	Rezone (Special)
15720	Grants special permit ZON03-00067 (Special)
15721	Creates tax increment financing district number four (Repealed by 17007)
15722	Amends § 12.88.180, tow-away zone (12.88)
15723	Authorizes mayor to sign special warranty deed with easement on behalf of water utilities public service board for city (Special)
15724	Amends Ord. 7913, lease agreement (Special)
15725	Amends § 13.24.200, rental rates and user fees authorization (13.24)
15726	Rezone (Special)
15727	Rezone (Special)
15728	Amends Title 14, director of aviation (14.04, 14.08, 14.12, 14.16, 14.20, 14.24)
15729	Amends § 14.12.200, parking of aircraft (14.12)
15730	Amends Appendix A of Ch. 14.24, cost recovery rates for fiscal year 2004 (14.24)
15731	Amends §§ 5.100.040 and 5.100.070, vendors and solicitors (5.100)
15732	Amends § 5.24.050, charitable solicitations (5.24)
15733	Amends § 5.48.030, laundries (5.24)
15734	Amends § 5.72.030, motor vehicle dealers and salesmen (5.72)
15735	Amends § 5.84.050, dealers in second hand good, coins and precious metals (5.84)
15736	Amends § 12.44.280, parking restrictions in residential districts (12.44)
15737	Amends Ord. 8064, classification and compensation plan (Special)
15738	Amends Ord. 8064, classification and compensation plan (Special)
15739	Permits Parents Association for Recreation for Kids, Inc. to use portion of White Spur Park (Special)
15740	Rezone (Special)
15741	Rezone (Special)
15742	Rezone (Special)
15743	Grants special permit ZON03-00085 (Special)
15744	Grants special permit ZON04-00006 (Special)
15745	Grants special permit ZON04-00007 (Special)
15746	Grants special permit ZON04-00002 (Special)
15747	Grants special privilege license to Border Taxi Cab Company (Special)
15748	Amends Ords. 011598 and 011902, International Bridge Commission (Special)
15749	Amends § 5.04.040, late payment penalty (5.04)

Ordinance Number	
15750	Amends § 13.04.015, sidewalk permits and fees (13.04)
15751	Amends § 13.12.050, permits fees (13.12)
15752	Amends §§ 17.08.120 and 17.08.220, lodginghouses, tenement houses, hotels and motels (17.08)

Ordinance Number	
15753	Amends § 17.12.040, trailer courts (17.12)
15754	Amends § 17.16.020, use of gas heaters (17.16)
15755	Amends § 18.02.109, building and construction permit fees (18.02)
15756	Adds § 18.02.103.7.5.5, fees (18.02)
15757	Amends § 18.44.150, grading permit fees (18.44)
15758	Amends §§ 20.66.100—20.66.120, signs (Repealed by 16653)
15759	Amends § 20.04.551.1, home occupation permits (Repealed by 16653)
15760	Amends § 12.88.200, restrictions on parking in residential districts (12.88)
15761	Amends § 12.88.030, prohibited parking (12.88)
15762	Amends § 12.88.150, speed limits (12.88)
15763	Rezone (Special)
15764	Rezone (Special)
15765	Grants special privilege to Regent Communications-El Paso (Special)
15766	Amends § 12.88.030, prohibited parking (12.88)
15767	Amends Ord. 8065, civil service rules and regulations (Special)
15768	Rezone (Special)
15769	Grants special permit ZON03-00066 (Special)
15770	Grants special permit ZON04-00008 (Special)
15771	Rezone (Special)
15772	Rezone (Special)
15773	Grants special privilege to El Paso Heritage Week Festival (Special)
15774	Repeals and replaces § 20.04.520, administrative provisions (Repealed by 16022)
15775	Authorizes mayor to sign contract of sale and other documents (Rescinded by 15894)
15776	Rezone (Special)
15777	Grants special permit ZON04-00030 (Special)
15778	Grants special permit ZON04-00019 (Special)
15779	Adds §§ 18.02.101.4.9.1—18.02.101.4.9.4, selection procedures for third party plan review services (18.02)
15780	Grants special privilege to Trade Key, LTD (Special)
15781	Grants special privilege to "RX" Sin Receta LLC (Special)
15782	Amends Ord. 8065, civil service rules and regulations (Special)
15783	Rezone (Special)
15784	Rezone (Special)
15785	Grants special privilege to Central Business Ass'n of El Paso, Inc. (Special)
15786	Grants special permit ZON04-00040 (Special)
15787	Grants special permit ZON04-00042 (Special)
15788	Rezone (Special)
15789	Street vacation (Special)
15790	Readopts Ch. 9.04; repeals § 9.04.365, solid waste management (9.04)
15791	Establishes deadlines and procedures for city council meeting agendas; repeals Ords. 010397, 011042, 011573, 15264 (Repealed by 16086)
15792	Amends § 12.88.030, prohibited parking (12.88)
15793	Amends § 12.88.030, prohibited parking (12.88)

Ordinance Number	
15794	Amends § 12.88.030, prohibited parking (12.88)
15795	Amends § 12.88.030, prohibited parking (12.88)
15796	Amends § 12.88.150, speed limits (12.88)
15797	Amends § 12.88.030, prohibited parking (12.88)
15798	Amends § 12.88.180, tow-away zones (12.88)
15799	Grants special permit ZON04-00041 (Special)
15800	Street vacation (Special)
15801	Street vacation (Special)
15802	Street vacation (Special)
15803	Street vacation (Special)
15804	Street vacation (Special)
15805	Amends Ords. 009918, 010482, 010544, 011098, 011779, 012468, 013481, Andy & Syd Cohen lease (Special)
15806	Rezone (Special)
15807	Amends 2025 proposed thoroughfare system (Special)
15808	Readopts Ch. 9.04; repeals § 9.04.365, solid waste management (9.04)
15809	Authorizes issuance of general obligation commercial paper notes (Special)
15810	Authorizes issuance and sale of solid waste disposal system revenue bonds (Special)
15811	Rezone (Special)
15812	Grants special permit ZON04-00015 (Special)
15813	Amends 2025 proposed thoroughfare system (Special)
15814	Rezone (Special)
15815	Grants special permit ZON04-00047 (Special)
15816	Rezone (Special)
15817	Amends § 12.88.030, prohibited parking (12.88)
15818	Amends § 12.88.180, tow-away zones (12.88)
15819	Rezone (Special)
15820	Rezone (Special)
15821	Rezone (Special)
15822	Rezone (Special)
15823	Rezone (Special)
15824	Amends 2025 proposed thoroughfare system (Special)
15825	Grants special privilege to Central Business Ass'n of El Paso, Inc. (Special)
15826	Amends §§ 20.34.020, 20.46.020, 20.48.020, 20.50.020, 20.53.030, 20.58.040, 20.60.040, permitted uses (Repealed by 16653)
15827	Amends 2025 proposed thoroughfare system (Special)
15828	Grants special permit ZON04-00061 (Special)
15829	Amends § 12.88.150, speed limits (12.88)
15830	Amends Ord. 8065, civil service rules and regulations (Special)
15831	Amends Ord. 8065, civil service rules and regulations (Special)
15832	Rezone (Special)
15833	Grants special permit ZON04-00065 (Special)
15834	Amends § 12.88.180, tow-away zones (12.88)
15835	Amends § 12.88.150, speed limits (12.88)
15836	Amends § 12.88.060, time limits for parking on certain streets (12.88)
15837	Grants special privilege to Marina Monsisvais (Special)
15838	Rezone (Special)

Ordinance Number	
15839	Amends § 2.100.070, duties (Repealed by 16249)
15840	Amends Ord. 8065, civil service rules and regulations (Special)
15841	Street vacation (Special)
15842	Street vacation (Special)
15843	Street vacation (Special)
15844	Authorizes mayor to sign contract of sale (Special)
15845	Rezone (Special)
15846	Authorizes mayor to execute quitclaim deed (Special)
15847	Grants special privilege to Kern Place Merchants Ass'n (Special)
15848	Amends § 12.88.180, tow-away zones (12.88)
15849	Amends § 12.88.180, tow-away zones (12.88)
15850	Amends Ord. 8065, civil service rules and regulations (Special)
15851	Rezone (Special)
15852	Grants special permit ZON04-00079
15853	Authorizes mayor to execute quit-claim deed (Special)
15854	Amends Ord. 14171 to redesignate officer for public information (Special)
15855	Amends § 2.92.050, standards of conduct (2.92)
15856	Amends §§ 15.08.012, 15.08.013, franchises (15.08)
15857	Grants special privilege to AT&T Corporation (Special)
15858	Amends § 12.88.010, one-way streets (12.88)
15859	Amends § 12.88.030, prohibited parking (12.88)
15860	Amends § 12.88.030, prohibited parking (12.88)
15861	Amends § 12.88.030, prohibited parking (12.88)
15862	Amends § 12.88.150, speed limits (12.88)
15863	Establishes functions of city manager's office (Repealed by 16128)
15864	Rezone (Special)
15865	Rezone (Special)
15866	Grants special permit ZON04-00004 (Special)
15867	Rezone (Special)
15868	Authorizes mayor to sign special warranty deed (Special)
15869	Amends § 12.88.150, speed limits (12.88)
15870	Amends Ord. 8064, classification and compensation (Special)
15871	Amends Ord. 8065, civil service rules and regulations (Special)
15872	Rezone (Special)
15873	Rezone (Special)
15874	Rezone (Special)
15875	Street vacation (Special)
15876	Repeals Ords. 15185 & 15529, building and planning services department (Repealed by 16129)
15877	Repeals Ords. 15186 & 15546, municipal services department (Repealed by 16132)
15878	Repeals Ords. 15184, 15531 & 15239, financial and administrative services department (Repealed by 16130)
15879	Repeals Ords. 15187 & 15530, quality of life services department (Repealed by 16131)
15880	Amends §§ 18.60.420—18.60.450, flood damage prevention (18.60)
15881	Grants special privilege to Kern Place Merchants Ass'n (Special)
15882	Grants special privilege to Kern Place Merchants Ass'n (Special)
15883	Temporary street closure (Special)

Ordinance Number	
15884	Amends § 15.08.120, special privilege licenses (15.08)
15885	Adds Ch. 13.30, film-making events (13.30)
15886	Amends § 12.88.040, prohibited parking (12.88)
15887	Amends Ord. 8065, civil service rules and regulations (Special)
15888	Amends Ord. 8065, civil service rules and regulations (Special)
15889	Grants special permit ZON04-00092
15890	Rezone (Special)
15891	Rezone (Special)
15892	Rezone (Special)
15893	Authorizes city manager to sign service contracts (Repealed by 16072)
15894	Rescinds Ord. 15775 (Special)
15895	Tax levy (Special)
15896	Rezone (Special)
15897	Street vacation (Special)
15898	Rezone (Special)
15899	Rezone (Special)
15900	Amends Ch. 18.16, electrical code (18.16)
15901	Grants special privilege to Barbara Enttinger (Special)
15902	Amends § 12.88.030, prohibited parking (12.88)
15903	Amends § 12.88.150, speed limits (12.88)
15904	Amends § 12.88.150, speed limits (12.88)
15905	Rezone (Special)
15906	Grants special permit ZON04-00100
15907	Rezone (Special)
15908	Rezone (Special)
15909	Grants special permit ZON04-00069
15910	Authorizes issuance of general obligation commercial paper notes (Special)
15911	Amends § 14.16.304, airport use regulations (14.16)
15912	Grants special permit ZON04-00091
15913	Amends § 12.88.030, prohibited parking (12.88)
15914	Rezone (Special)
15915	Rezone (Special)
15916	Grants special permit ZON04-00108
15917	Street vacation (Special)
15918	Street vacation (Special)
15919	Amends §§ 13.30.040, 13.30.050, film-making events
15920	Amends § 12.88.030, prohibited parking (12.88)
15921	Amends § 12.88.030, prohibited parking (12.88)
15922	Amends Ord. 8065, civil service rules and regulations (Special)
15923	Street vacation (Special)
15924	Rezone (Special)
15925	Grants special permit ZONO4-00064 (Special)
15926	Rezone (Special)
15927	Grants special permit ZONO4-00064 (Special)
15928	Rezone (Special)
15929	Grants special permit ZONO4-00118 (Special)
15930	Rezone (Special)
15931	Rezone (Special)
15932	Grants special privilege to HCA Health Science of Texas, Inc. (Special)
15933	Authorizes city to participate in Texas Enterprise Zone Program (Special)

Ordinance Number	
15934	Grants special privilege to Sun Bowl Association (Special)
15935	Street vacation (Special)
15936	Street vacation (Special)
15937	Rezone (Special)
15938	Rezone (Special)
15939	Amends § 12.88.040, prohibited parking (12.88)
15940	Amends § 12.88.200, parking restrictions (12.88)
15941	Rezone (Special)
15942	Grants special permit ZON04-00 129 (Special)
15943	Amends § 14.16.135, airport use regulations (14.16)
15944	Amends Appendix A of Ch. 14.24, cost recovery rates for fiscal year 2005 (14.24)
15945	Provides for issuance and sale of water and sewer revenue refunding bonds (Special)
15946	Repeals Ch. 5.52 (Repealer)
15947	Amends § 12.88.150, speed limits (12.88)
15948	Amends § 12.88.180, tow-away zones (12.88)
15949	Grants special permit ZON04-00113 (Special)
15950	Rezone (Special)
15951	Rezone (Special)
15952	Rezone (Special)
15953	Grants special privilege to Sun Bowl Association (Special)
15954	Street vacation (Special)
15955	Amends § 12.88.200, parking restrictions (12.88)
15956	Amends Ch. 9.12, food handling establishments (9.12)
15957	Grants special permit ZON04-00 124 (Special)
15958	Grants special permit ZON04-00125 (Special)
15959	Rezone (Special)
15960	Rezone (Special)
15961	Amends Ords. 010873, 012221, 012476, 012636, 014826, 15415, foreign trade zone (Special)
15962	Amends Ch. 2.30, building board of appeals; repeals Chs. 2.32 and 2.34, plumbing and electrical board of appeals (2.30)
15963	Amends Ch. 18.08, building code (18.08)
15964	Amends Ch. 9.52, fire prevention code (9.52)
15965	Amends Ch. 18.12, mechanical code (18.12)
15966	Amends Ch. 18.20, plumbing code (18.20)
15967	Adds [amends] Ch. 18.10, residential code (18.10)
15968	Amends Ch. 18.24, gas code (18.24)
15969	Amends § 12.88.200, parking restrictions (12.88)
15970	Amends § 12.88.030, prohibited parking (12.88)
15971	Amends § 15.08.120, special privilege licenses (15.08)
15972	Rezone (Special)
15973	Grants special permit ZON04-00134 (Special)
15974	Authorizes mayor to sign special warranty deed (Special)
15975	Authorizes mayor to sign new lease agreement (Special)
15976	Rezone (Special)
15977	Rezone (Special)
15978	Amends § 12.88.150, speed limits (15.08)
15979	Rezone (Special)
15980	Grants special permit ZON04-00148 (Special)
15981	Rezone (Special)

Ordinance Number	
15982	Rezone (Special)
15983	Grants special privilege to Ahn Chi Ho (Special)
15984	Rezone (Special)
15985	Rezone (Special)
15986	Grants special permit ZON04-00141 (Special)
15987	Creates workforce retraining advisory committee (Repealed by 16533)
15988	Rezone (Special)
15989	Rezone (Special)
15990	Rezone (Special)
15991	Rezone (Special)
15992	Repeals Ord. 14764 (Special)
15993	Amends § 18.02.101.4.9, selection procedures for third party plan review services (18.02)
15994	Grants special privilege to Kern Place Merchants Ass'n (Special)
15995	Grants special privilege to O.P.E.P. Inc. (Special)
15996	Adds Ch. 18.18, outdoor lighting (18.18)
15997	Amends Ords. 9918, 10482, 10544, 11098, 11779, 12468, 13481, 15805, Andy and Syd Cohen Stadium lease (Special)
15998	Adds Ch. 2.38, building and standards commission (2.38)
15999	Adds Ch. 18.50, property maintenance code; repeals Ch. 18.52, unsafe structures and conditions (18.50)
16000	Amends § 12.88.030, prohibited parking (12.88)
16001	Authorizes mayor to sign contract of sale and other documents (Special)
16002	Rezone (Special)
16003	Repeals and replaces §§ 19.28.010, 19.28.020, construction and guarantees (19.28)
16004	Adds § 20.02.362, golf driving range; amends §§ 20.12.040, 20.14.040, 20.20.040, 20.22.040, 20.24.040, 20.28.040, 20.30.040, 20.32.040, uses permitted by special permit (Repealed by 16653)
16005	Adds § 20.02.362, golf driving range; amends §§ 20.36.020, 20.38.020, permitted uses (Repealed by 16653)
16006	Amends Ord. 13980, granting special privilege (Special)
16007	Vacates city's interest in property (Special)
16008	Amends § 18.02.108.3.1, electrical contractors (18.02)
16009	Provides for issuance and sale of water and sewer revenue bonds (Special)
16010	Authorizes mayor to sign lease agreement (Special)
16011	Grants special permit ZON04-00144 (Special)
16012	Rezone (Special)
16013	Grants special privilege (Special)
16014	Amends § 3.04.050; repeals § 3.04.060, delinquent taxes (3.04)
16015	Authorizes city manager to enter into and sign certain contracts (Special)
16016	Relates to process for submitting grant applications and accepting grant funding (Special)
16017	Amends Ord. 8064, classification and compensation plan (Special)
16018	Street vacation (Special)
16019	Street vacation (Special)
16020	Authorizes issuance of general obligation refunding bonds (Special)
16021	Rezone (Special)

Ordinance Number	
16022	Repeals and replaces § 20.04.520, administrative provisions (Repealed by 16653)
16023	Provides for issuance and sale of water and sewer revenue refunding bonds (Special)
16024	Provides for issuance and sale of water and sewer revenue bonds (Special)
16025	Provides for issuance and sale of water and sewer revenue refunding bonds (Special)
16026	Amends § 19.12.050, standards for deeded parkland (Expired)
16027	Amends 2025 Proposed Thoroughfare System (Special)
16028	Amends § 3.04.040, property taxes (3.04)
16029	Amends § 12.88.150, speed limits (12.88)
16030	Rezone (Special)
16031	Grants special privilege to Central Business Ass'n (Special)
16032	Grants special permit ZON05-00001 (Special)
16033	Grants special privilege to Keith Mahar (Special)
16034	Amends § 19.16.020, streets (19.16)
16035	Grants special privilege (Special)
16036	Authorizes city manager to sign special warranty deed (Special)
16037	Authorizes city manager to sign special warranty deed (Special)
16038	Authorizes city manager to sign special warranty deed (Special)
16039	Authorizes city manager to sign special warranty deed (Special)
16040	Amends § 2.30.060, building board of appeals (2.30)
16041	Adds § 18.18.375, historic properties (18.18)
16042	Repeals and replaces §§ 19.04.100, 19.16.030, subdivisions, and amends T. 19, Appx. A, § 8, street lighting (19.04, 19.16)
16043	Adds §§ 20.02.078, 20.02.258; amends §§ 20.10.040, 20.40.040, 20.42.040, zoning (Repealed by 16653)
16044	Grants special permit ZON05-00009 (Special)
16045	Grants special permit ZON05-00012 (Special)
16046	Amends § 12.88.150, speed limits (12.88)
16047	Grants special privilege to Central Business Ass'n of El Paso, Inc. (Special)
16048	Amends § 19.16.050, stormwater design (19.16)
16049	Amends § 12.88.030, prohibited parking (12.88)
16050	Rezone (Special)
16051	Repeals and replaces § 20.04.270, special permits for planned residential developments (Repealed by 16653)
16052	Rezone (Special)
16053	Grants special permit ZON05-00021 (Special)
16054	Extends term of special privilege license (Special)
16055	Amends § 12.88.040, prohibited parking (12.88)
16056	Incorporates El Paso Water Utilities Public Service Board Westside Master Plan as specific study area plan (Special)
16057	Rezone (Special)
16058	Grants special permit ZON05-00010 (Special)
16059	Grants special permit ZON05-00011 (Special)

Ordinance Number	
16060	Rezone (Special)
16061	Grants special privilege to O.P.E.P. Inc. (Special)
16062	Amends Ord. 8065, civil service rules and regulations (Special)
16063	Grants special privilege to El Paso Empowerment Zone Corp. (Special)
16064	Grants special permit ZON05-00018 (Special)
16065	Rezone (Special)
16066	Amends § 12.88.180, tow-away zones (12.88)
16067	Amends § 12.88.030, prohibited parking (12.88)
16068	Rezone (Special)
16069	Grants special privilege to Regent Communications, Inc. (Special)
16070	Rescinds Ord. 9272 as amended by Ords. 11363 and 11651 (Special)
16071	Partially rescinds Ord. 13388 as amended by Ords. 13851 and 13958 (Special)
16072	Repeals Ord. 15893 (Repealed by 16727)
16073	Grants authority to city manager to make temporary employee appointments (Special)
16074	Authorizes city manager to sign special warranty deed (Special)
16075	Amends § 2.64.200, city employees' pension fund (2.64)
16076	Amends §§ 2.64.120, 2.64.140, 2.64.190, 2.64.200, 2.64.260, 2.64.400; repeals § 2.64.160; renumbers § 2.64.165 as § 2.64.160 (2.64)
16077	Rezone (Special)
16078	Rezone (Special)
16079	Grants special permit ZON05-00026 (Special)
16080	Rezone (Special)
16081	Grants special privilege to Octavio Gomez (Special)
16082	Grants special privilege to Impact: Programs of Excellence (Special)
16083	Grants special privilege to Central Business Ass'n (Repealed by 16279)
16084	Grants special privilege to O.P.E.P. Inc. (Special)
16085	Amends § 12.88.040, prohibited parking (12.88)
16086	Establishes deadlines and procedures for city council meeting agendas; repeals Ord. 15791 (Special)
16087	Rezone (Special)
16088	Rezone (Special)
16089	Rezone (Special)
16090	Grants franchise to El Paso Electric Co. (Special)
16091	Rezone (Special)
16092	Grants special permit ZON05-00031 (Special)
16093	Grants special permit ZON05-00035 (Special)
16094	Authorizes city manager to sign special warranty deed (Special)
16095	Grants special privilege to Kern Place Merchants Ass'n (Special)
16096	Rezone (Special)
16097	Grants special permit ZON05-00030 (Special)
16098	Authorizes mayor to sign lease agreement (Special)
16099	Amends 2025 Proposed Thoroughfare System (Special)
16100	Incorporates El Paso Water Utilities Public Service Board Northeast Master Plan as specific study area plan (Special)
16101	Rezone (Special)
16102	Rezone (Special)

Ordinance Number	
16103	Rezone (Special)
16104	Vacates portions of drainage easements (Special)
16105	Amends § 12.88.150, speed limits (12.88)
16106	Amends § 12.88.010, one-way streets (12.88)
16107	Grants special privilege to Great Vibe, L.L.C. (Special)
16108	Rezone (Special)
16109	Grants special permit ZON05-00039 (Special)
16110	Grants special permit ZON05-00043 (Special)
16111	Grants special permit ZON05-00044 (Special)
16112	Grants special permit ZON05-00046 (Special)
16113	Authorizes city manager to sign contract of sale (Special)
16114	Authorizes mayor to sign lease agreement (Special)
16115	Amends 2025 Proposed Thoroughfare System (Special)
16116	Authorizes issuance of tax and revenue certificates of obligation (Special)
16117	Authorizes city to sell portion of Lots 1, 2, and 3, Block B (Special)
16118	Authorizes city to sell portion of Lots 17-32 (Special)
16119	Authorizes city to sell 0.173-acre parcel (Special)
16120	Amends Ord. 8065, civil service rules and regulations (Special)
16121	Vacates portion of Wright Avenue right-of-way (Special)
16122	Rezone (Special)
16123	Rezone (Special)
16124	Rezone (Special)
16125	Rezone (Special)
16126	Amends §§ 5.36.010, 5.36.021, 5.36.090, gasoline filling stations (5.36)
16127	Amends §§ 5.90.010—5.90.032, 5.90.060, 5.90.070, 5.90.080, 5.90.094, security alarm systems (5.90)
16128	Adds Ch. 2.110, city organizational structure; repeals Ord. 15863 (2.110)
16129	Repeals Ord. 15876 (Special)
16130	Repeals Ord. 15878 (Special)
16131	Repeals Ord. 15879 (Special)
16132	Repeals Ord. 15877 (Special)
16133	Renames Ch. 2.40; amends § 2.40.010, department of museums and cultural affairs (2.40)
16134	Substitutes various department names throughout the code (2.100, 2.102, 3.20, 5.20, 5.108, 9.04, 15.08, 18.44, 19.04, 19.08, 19.12, 19.16, 19.28, 19.32, 19.44)
16135	Substitutes various director names throughout the code (2.88, 2.102, 9.04, 15.08, 18.60)
16136	Adds and designates Enforcement Authority of Dep't of Environmental Services and Development Services Dep't (Special)
16137	Amends § 20.04.070, development services (Repealed by 16653)
16138	Amends §§ 9.08.010, 9.08.030, 9.08.050, 9.08.060, junked vehicles (9.08)
16139	Amends § 19.04.190, enforcement, violations, penalties (19.04)
16140	Amends § 12.04.190, traffic engineer (12.04)

Ordinance Number	
16141	Amends § 20.02.848, traffic engineer (Repealed by 16653)
16142	Amends §§ 18.60.420—18.60.450, flood damage prevention (18.60)
16143	Establishes manner in which fees charged by city will be set (Special)
16144	Renames Ch. 9.04; amends §§ 9.04.030, 9.04.400—9.04.430, 9.04.450, environmental services (9.04)
16145	Amends § 13.24.200, city parks and recreation areas (13.24)
16146	Amends § 12.88.180, tow-away zones (12.88)
16147	Amends § 12.88.150, speed limits (12.88)
16148	Amends § 12.88.150, speed limits (12.88)
16149	Adds § 12.88.081, common carrier passenger route (12.88)
16150	Amends § 12.88.200, parking restrictions (12.88)
16151	Amends § 12.88.040, prohibited parking (12.88)
16152	2006 tax levy (Special)
16153	Amends Ord. 8065, civil service rules and regulations (Special)
16154	Grants special privilege to O.P.E.P. Inc. (Special)
16155	Grants special permit ZON05-00038 (Special)
16156	Rezone (Repealed by 16270)
16157	Amends § 12.88.040, prohibited parking (12.88)
16158	Rezone (Special)
16159	Rezone (Special)
16160	Amends § 12.88.030, prohibited parking (12.88)
16161	Amends Ord. 8064, classification and compensation plan (Special)
16162	Amends Ord. 8065, civil service rules and regulations (Special)
16163	Rezone (Special)
16164	Grants special permit ZON05-00049 (Special)
16165	Grants special permit ZON05-00057 (Special)
16166	Amends § 12.88.150, speed limits (12.88)
16167	Amends Ord. 12393, special privilege granting off-street parking (Special)
16168	Grants special privilege to Anita Conger (Special)
16169	Rescinds Ord. 13388, which granted special privilege to Ysleta Independent School District (Special)
16170	Amends Ord. 8065, civil service rules and regulations (Special)
16171	Rezone (Special)
16172	Amends § 12.88.200, parking restrictions (12.88)
16173	Amends § 12.88.030, prohibited parking (12.88)
16174	Amends § 12.88.030, prohibited parking (12.88)
16175	Grants special permit ZON05-00071 (Special)
16176	Rezone (Special)
16177	Rezone (Special)
16178	Rezone (Special)
16179	Rezone (Special)
16180	Grants special permit ZON05-00083 (Special)
16181	Grants special privilege to El Paso Sports Comm'n (Special)
16182	Authorizes city manager to fill position vacancy (Special)
16183	Amends § 12.88.030, prohibited parking (12.88)
16184	Rezone (Special)

Ordinance Number	
16185	Rezone (Special)
16186	Rezone (Special)
16187	Grants special permit ZON05-00082 (Special)
16188	Grants special privilege to La Mujer Obrera (Special)
16189	Grants renewal of franchise for Sun City Ambulance Service (Special)
16190	Rezone (Special)
16191	Grants special permit ZON05-00099 (Special)
16192	Grants special privilege to Downtown Management District (Special)
16193	Amends § 14.16.135, airport use regulations (14.16)
16194	Amends §§ 14.24.020, 14.24.030, commercial air carrier rates and charges (14.24)
16195	Amends § 12.88.150, speed limits (12.88)
16196	Adds § 2.40.070; amends §§ 2.40.010, 2.40.020, 2.40.060; repeals Ords. 14880, 15581, department of museums and cultural affairs (2.40)
16197	Rezone (Special)
16198	Grants special permit ZON05-00087 (Special)
16199	Grants special permit ZON05-00089 (Special)
16200	Grants special privilege to Anne S. Burrows (Special)
16201	Amends § 12.44.180, stopping, standing, parking (12.44)
16202	Amends § 12.88.030, prohibited parking (12.88)
16203	Adds Ch. 12.21, dangerous intersection monitoring (12.21)
16204	Amends § 12.88.010, one-way streets (12.88)
16205	Amends § 12.88.180, stopping, standing, parking (12.88)
16206	Amends § 12.88.060, parking time limits (12.88)
16207	Amends § 12.88.150, speed limits (12.88)
16208	Amends § 12.88.150, speed limits (12.88)
16209	Amends Ord. 8064, classification and compensation plan (Special)
16210	Adds § 20.02.142; amends §§ 20.36.020, 20.38.020, 20.40.020, 20.42.020, 20.44.020, 20.52.040, zoning (Repealed by 16653)
16211	Grants special permit ZON05-00088 (Special)
16212	Rezone (Special)
16213	Grants special permit ZON05-00096 (Special)
16214	Rezone (Special)
16215	Authorizes city manager to execute tax resale quitclaim deed (Special)
16216	Amends § 12.88.200, parking restrictions (12.88)
16217	Rezone (Special)
16218	Rezone (Special)
16219	Grants special permit ZON05-00102 (Special)
16220	Authorizes city manager to sign special warranty deed (Special)
16221	Street vacation (Special)
16222	Street vacation (Special)
16223	Street vacation (Special)
16224	Amends § 12.88.030, prohibited parking (12.88)
16225	Grants franchise renewal for Life Ambulance Service (Special)
16226	Authorizes city manager to sign lease agreement (Special)
16227	Authorizes city manager to sign lease agreement (Special)

Ordinance Number	
16228	Street vacation (Special)
16229	Amends Title 7, animals (7.04, 7.08, 7.12, 7.16, 7.20, 7.24)
16230	Repeals Ch. 2.88, selection procedures for architects (Repealer)
16231	Authorizes city manager to sign special warranty deed (Special)
16232	Rezone (Special)
16233	Grants special permit ZON05-00107 (Special)
16234	Rezone (Special)
16235	Grants special permit ZON05-00111 (Special)
16236	Amends 2025 proposed thoroughfare system (Special)
16237	Amends 2025 proposed thoroughfare system (Special)
16238	Rezone (Special)
16239	Changes date of city general election (Special)
16240	Amends § 20.02.408, kennel (Repealed by 16653)
16241	Rezone (Special)
16242	Rezone (Special)
16243	Rezone (Special)
16244	Rezone (Special)
16245	Rezone (Special)
16246	Repeals Ord. 012631 (Repealer)
16247	Authorizes city to sell portion of land (Special)
16248	Street vacation (Special)
16249	Repeals Ch. 2.100, water conservation advisory board (Repealer)
16250	Rezone (Special)
16251	Rezone (Special)
16252	Rezone (Special)
16253	Rezone (Special)
16254	Rezone (Special)
16255	Grants special permit ZON05-00121 (Special)
16256	Rezone (Special)
16257	Rezone (Special)
16258	Rezone (Special)
16259	Rezone (Special)
16260	Rezone (Special)
16261	Amends § 20.08.080, adult businesses (Repealed by 16653)
16262	Amends § 20.08.090, sale of alcoholic beverages (Repealed by 16653)
16263	Affirms use of city property in accordance with Interlocal Cooperation Agreement (Special)
16264	Affirms use of city property in accordance with Interlocal Cooperation Agreement (Special)
16265	Rezone (Special)
16266	Rezone (Special)
16267	Rezone (Special)
16268	Rezone (Special)
16269	Street vacation (Special)
16270	Repeals Ord. 16156 (Repealer)
16271	Rezone (Special)
16272	Terminates special privilege (Special)
16273	Establishes Advisory Committee on International Affairs (Repealed by 16505)
16274	Amends § 2.44.030; repeals Ord. 12403, judges (2.44)
16275	Amends § 12.88.150, speed limits (12.88)
16276	Amends § 12.88.150, speed limits (12.88)
16277	Amends Ord. 8065 (Special)
16278	Grants special privilege to Texas Tech (Special)
16279	Terminates Ord. 16083 which granted special privilege (Special)
16280	Grants special privilege to Kern Place Merchants Ass'n (Special)
16281	Rezone (Special)

Ordinance Number	
16282	Rezone (Special)
16283	Rezone (Special)
16284	Rezone (Special)
16285	Provides for issuance and sale of sewer revenue refunding bonds (Special)
16286	Authorizes city to sell portion of land (Special)
16287	Rezone (Special)
16288	Grants special permit ZON05-00142 (Special)
16289	Grants special privilege to OPEP Inc. (Special)
16290	Rezone (Repealed by 16354)
16291	Amends §§ 19.12.030, 19.12.050, 19.12.100, parkland dedication (19.12)
16292	Rezone (Special)
16293	Rezone (Special)
16294	Rezone (Special)
16295	Rezone (Special)
16296	Amends § 12.88.030, vehicles and traffic (12.88)
16297	Amends § 12.88.030, vehicles and traffic (12.88)
16298	Amends § 12.88.180, tow-away zone (12.88)
16299	Amends § 12.88.200, parking restrictions (12.88)
16300	Adds Ch. 2.94, regulation of lobbying activities (2.94)
16301	Adds §§ 2.92.100, 2.92.110, 2.92.150; amends § 2.92.030; repeals § 2.92.090, ethics (2.92)
16302	Rezone (Special)
16303	Amends § 20.08.060, general design and use regulations (Repealed by 16653)
16304	Adds § 20.02.722; amends §§ 20.66.090, 20.66.100; repeals and replaces §§ 20.66.130, 20.66.300, signs (Repealed by 16653)
16305	Grants special permit ZON06-00001 (Special)
16306	Rezone (Special)
16307	Rezone (Special)
16308	Grants special permit ZON05-00149 (Special)
16309	Amends §§ 10.20.010, 10.20.020, offenses by or against minors (10.20)
16310	Rezone (Special)
16311	Rezone (Special)
16312	Grants special permit ZON05-00156 (Special)
16313	Grants special permit ZON05-00159 (Special)
16314	Amends §§ 2.77.010, 2.77.020, 2.77.040, tree board (2.77)
16315	Amends Ch. 13.32, temporary events (13.32)
16316	Adds Ch. 13.34, picketing (13.34)
16317	Adds Ch. 13.36, parades and public assemblies (13.36)
16318	Amends Ch. 13.28, sound amplifying devices (13.28)
16319	Amends § 15.08.120, street rentals (15.08)
16320	Rezone (Special)
16321	Rezone (Special)
16322	Street vacation (Special)
16323	Street vacation (Special)
16324	Provides for art in municipal places; repeals Ords. 15073, 15245 (Special)
16325	Rezone (Special)
16326	Grants special permit ZON06-00013 (Special)
16327	Amends Ch. 18.50, property maintenance code (18.50)
16328	Repeals Ords. 14102 and 14116, building and zoning advisory committee (Repealer)
16329	Rezone (Special)

Ordinance Number	
16330	Rezone (Special)
16331	Rezone (Special)
16332	Amends Ord. 15845, rezone (Special)
16333	Rezone (Special)
16334	Grants special permit ZON06-00023 (Special)
16335	Amends § 12.88.180, schedules (12.88)
16336	Amends § 12.88.030, schedules (12.88)
16337	Amends § 12.88.060, schedules (12.88)
16338	Amends § 12.88.060, schedules (12.88)
16339	Amends § 12.88.030, schedules (12.88)
16340	Amends § 12.88.200, schedules (12.88)
16341	Amends § 12.88.200, schedules (12.88)
16342	Amends § 12.88.150, schedules (12.88)
16343	Amends § 12.88.150, schedules (12.88)
16344	Amends § 12.88.150, schedules (12.88)
16345	Amends § 12.88.150, schedules (12.88)
16346	Amends § 12.88.150, schedules (12.88)
16347	Amends § 12.88.150, schedules (12.88)
16348	Amends § 12.88.150, schedules (12.88)
16349	Amends § 12.88.150, schedules (12.88)
16350	Provides issuance of general obligation bonds (Special)
16351	Authorizes manager to sign certain lease agreement (Special)
16352	Amends Ord. 8064, classification and compensation plan (Special)
16353	Repeals Ords. 7573, 10118 and 11469, mayor's advisory board on aging (Repealer)
16354	Repeals Ord. 16290, rezone (Special)
16355	Rezone (Special)
16356	Amends Ch. 18.60, flood damage prevention (18.60)
16357	Grants special privilege to O.P.E.P. (Special)
16358	Amends § 12.88.030, schedules (12.88)
16359	Authorizes city manager to sign special warranty deed (Special)
16360	Rezone (Special)
16361	Authorizes conveyance of property (Special)
16362	Rezone (Special)
16363	Amends §§ 6.16.200 and 6.16.230, taxicabs (6.16)
16364	Grants special privilege to S & V Entertainment, LLC (Special)
16365	Amends § 19.04.170, subdivisions (19.04)
16366	Rezone (Special)
16367	Repeals and replaces Ch. 20.67, zoning (Repealed by 16653)
16368	Grants special privilege to El Paso Festival Association (Special)
16369	Adds Ch. 2.24, historic landmark commission (2.24)
16370	Adds § 3.04.035, property taxes (3.04)
16371	Grants special privilege to Regent Communications (Special)
16372	Grants lease and special privilege to Ethicon Endo Surgery, Inc. (Special)
16373	Amends § 12.44.170, stopping, standing and parking generally (12.44)
16374	Authorizes conveyance of property (Special)

Ordinance Number	
16375	Rezone (Special)
16376	Amends Ord. 10764, rezone (Special)
16377	Release zoning conditions for property rezoned in Ord. 12593 (Special)
16378	Rezone (Special)
16379	Annexation (Special)
16380	Annexation (Special)
16381	Amends § 20.52.165, zoning (Repealed by 16653)
16382	Rezone (Special)
16383	Rezone (Special)
16384	Grants special permit ZON06-00015 (Special)
16385	Rezone (Special)
16386	Rezone (Special)
16387	Annexation (Special)
16388	Annexation (Special)
16389	Rezone (Special)
16390	Rezone (Special)
16391	Annexation (Special)
16392	Rezone (Special)
16393	Grants special permit ZON06-00014 (Special)
16394	Rezone (Special)
16395	Amends Ord. 14596, rezone (Special)
16396	Imposes a moratorium for rezoning of a certain district (Special)
16397	Amends § 12.88.040, schedules (12.88)
16398	Authorizes city to sell 1.764-acre parcel (Special)
16399	Amends Ord. 8065, civil service commission (Special)
16400	Amends Ord. 8065, civil service commission (Special)
16401	Amends Ord. 8065, civil service commission (Special)
16402	Amends Ord. 8065, civil service commission (Special)
16403	Amends Ord. 8065, civil service commission (Special)
16404	Amends Ord. 8065, civil service commission (Special)
16405	Amends Ord. 8065, civil service commission (Special)
16406	Rezone (Special)
16407	Rezone (Special)
16408	Rezone (Special)
16409	Authorizes manager to sign certain lease agreement (Special)
16410	Amends § 12.88.160; repeals Ords. 9701, 9702, 9782, 9783, 9974, 15179 and 15747, schedules (12.88)
16411	Amends §§ 6.16.090 and 6.16.480, taxicabs (6.16)
16412	Amends § 14.16.418, airport use regulations (14.16)
16413	Rezone (Special)
16414	Grants special permit ZON06-00060 (Special)
16415	Rezone (Special)
16416	Rezone (Special)
16417	Rezone (Special)
16418	Rezone (Special)
16419	Emergency ordinance declaring a state of disaster (Special)
16420	Amends Ord. 15703, Brownfields Redevelopment Board (Repealed by 16986)
16421	Repeals Ord. 14680, ad hoc waste tire disposal advisory committee (Repealer)
16422	Rezone (Special)
16423	Grants special permit ZON06-00026 (Special)
16424	Grants special privilege for temporary street closure (Special)
16425	Amends § 12.88.150, schedules (12.88)
16426	Amends § 12.88.150, schedules (12.88)

Ordinance Number	
16427	Amends § 12.88.150, schedules (12.88)
16428	Creates three divisions of Municipal Court Number Four (Special)
16429	Amends §§ 19.12.090 and 19.12.100, subdivisions (19.12)
16430	Rezone (Special)
16431	Rezone (Special)
16432	Grants special permit ZON06-00064 (Special)
16433	Rezone (Special)
16434	Grants special permit ZON06-00040 (Special)
16435	Annexation (Special)
16436	Rezone (Special)
16437	Amends § 12.88.050, schedules (12.88)
16438	Grants non-exclusive franchise to Sign Store (Special)
16439	Amends Ord. 8064, classification and compensation plan (Special)
16440	Authorizes manager to sign certain lease agreement (Special)
16441	Amends §§ 13.25.010 and 13.25.020, El Paso zoo; repeals § 13.25.015 (13.25)
16442	Rezone (Special)
16443	Rezone (Special)
16444	Grants special permit ZON06-00067 (Special)
16445	Rezone (Special)
16446	Amends § 19.16.050, zoning (19.16)
16447	2007 tax levy (Special)
16448	Amends §§ 2.94.020, 2.94.030, 2.94.040, 2.94.050, 2.94.060 and 2.94.090, regulation of lobbying activities (2.94)
16449	Authorizes city to sell portion of land (Special)
16450	Authorizes manager to sign certain lease agreement (Special)
16451	Authorizes city manager to execute tax resale quitclaim deed (Special)
16452	Authorizes city manager to execute tax resale quitclaim deed (Special)
16453	Authorizes city manager to execute tax resale quitclaim deed (Special)
16454	Authorizes city manager to execute tax resale quitclaim deed (Special)
16455	Authorizes city manager to execute tax resale quitclaim deed (Special)
16456	Amends Ords. 10873, 12221, 12476, 12636, 14826, 15415 and 15961, establishes fees and operating procedures to permit designation and authorization of manufacturing operators (Special)
16457	(Skipped)
16458	Amends § 20.62.020, zoning (Repealed by 16653)
16459	Authorizes city to sell portion of land (Special)
16460	Grants special permit ZON06-00070 (Special)
16461	Rezone (Special)
16462	Grants special privilege for temporary street closure (Special)
16463	Amends § 14.16.413, airport use regulations (14.16)
16464	Grants special permit ZON06-00074 (Special)
16465	Grants special privilege for temporary street closure (Special)
16466	Amends § 12.88.030, schedules (12.88)

Ordinance Number	
16467	Amends § 12.88.030, schedules (12.88)
16468	Amends § 12.88.040, schedules (12.88)
16469	Adds § 12.88.041, schedules (12.88)
16470	Grants special permit ZON06-00084 (Special)
16471	Rezone (Special)
16472	Grants special permit ZON06-00080 (Special)
16473	Grants special permit ZON06-00075 (Special)
16474	Amends §§ 2.64.010, 2.64.120, 2.64.130, 2.64.140 and 2.64.190, city employees' pension fund (2.64)
16475	Grants special privilege for temporary street closure (Special)
16476	Rezone (Special)
16477	Amends § 15.08.120, street rentals (15.08)
16478	Amends § 12.88.180, schedules (12.88)
16479	Amends § 12.88.030, schedules (12.88)
16480	Amends § 12.88.030, schedules (12.88)
16481	Amends § 12.44.180, stopping, standing and parking generally (12.44)
16482	Amends § 12.88.180, schedules (12.88)
16483	Authorizes city to sell portion of land (Special)
16484	Authorizes city to sell portion of land (Special)
16485	Authorizes city to sell portion of land (Special)
16486	Rezone (Special)
16487	Approves Downtown 2015 Plan as study area plan (Special)
16488	Amends §§ 13.36.010 and 13.36.040, parades and public assemblies (13.36)
16489	Rezone (Special)
16490	Rezone (Special)
16491	Rezone (Special)
16492	Amends Ch. 2.30, construction board of appeals (2.30)
16493	Provides for issuance and sale of water and sewer revenue refunding bonds (Special)
16494	Rezone (Special)
16495	Rezone (Special)
16496	Rezone (Special)
16497	Rezone (Special)
16498	Rezone (Special)
16499	Rezone (Special)
16500	Rezone (Special)
16501	Rezone (Special)
16502	Alley vacation (Special)
16503	Right-of-way vacation (Special)
16504	Rezone (Special)
16505	Repeals Ord. 16273, Advisory Committee on International Affairs (Repealer)
16506	Amends § 12.88.180, schedules (12.88)
16507	Amends § 18.08.090, building code (18.08)
16508	Authorizes city manager to execute tax resale quitclaim deed (Special)
16509	Rezone (Special)
16510	Rezone (Special)
16511	Rezone (Special)
16512	Rezone (Special)
16513	Grants special permit ZON06-00118 (Special)
16514	Grants special permit ZON06-00117 (Special)
16515	Amends § 2.38.030, building and standards commission (2.38)

Ordinance Number	
16516	Amends § 2.16.050, zoning board of adjustment (Repealed by 16888)
16517	Amends § 12.88.200, schedules (12.88)
16518	Repeals § 13.04.040, street and sidewalk construction and maintenance (Repealer)
16519	Adds Ch. 5.46, assisted living facilities (5.46)
16520	Rezone (Special)
16521	Grants special permit ZON06-00110 (Special)
16522	Alley vacation (Special)
16523	Rezone (Special)
16524	Rezone (Special)
16525	Rezone (Special)
16526	Rezone (Special)
16527	Right-of-way vacation (Special)
16528	Designates reinvestment zone (Special)
16529	Establishes regulations to refuse to enter into agreement with indebted persons (Special)
16530	Reaffirms Ord. 16484, sale of land (Special)
16531	Grants special privilege for temporary street closure (Special)
16532	Amends §§ 19.12.010, 19.12.085, 19.12.100 and 19.12.110, subdivisions (19.12)
16533	Repeals Ord. 15987, workforce retraining advisory committee (Special)
16534	Rezone (Special)
16535	Amends §§ 13.36.050, 13.36.070 and 13.36.080, parades and public assemblies (13.36)
16536	Authorizes city to sell portion of land (Special)
16537	Incorporates El Paso Water Utilities Public Service Board Northeast Master Plan as specific study area plan (Special)
16538	Amends § 12.88.041, schedules (Repealed by 16590)
16539	Rezone (Special)
16540	Rezone (Special)
16541	Rezone (Special)
16542	Rezone (Special)
16543	Rezone (Special)
16544	Rezone (Special)
16545	Amends § 12.88.060, schedules (12.88)
16546	Amends § 12.88.030, schedules (12.88)
16547	Amends § 12.88.150, schedules (12.88)
16548	Amends Ch. 2.102, neighborhood association recognition (2.102)
16549	Amends 2025 proposed thoroughfare system (Special)
16550	Amends § 12.88.200, schedules (12.88)
16551	Authorizes city manager to sign agreement with Chihuahuita Neighborhood Association (Special)
16552	Authorizes issuance of general obligation refunding bonds (Special)
16553	Grants special permit ZON06-00141 (Special)
16554	Rezone (Special)
16555	Grants special privilege for temporary street closure (Special)
16556	Grants special privilege for temporary street closure (Special)
16557	Amends § 12.88.030, schedules (12.88)
16558	Amends § 12.88.180, schedules (12.88)

Ordinance Number	
16559	Authorizes city to sell portion of Lots 10, 11, 16, 17, 34 and 35 (Special)
16560	Amends and restates lease agreement with El Paso Independent School District (Special)
16561	Rezone (Special)
16562	Authorizes city manager to sign special warranty deed (Special)
16563	Authorizes city manager to sign special warranty deed (Special)
16564	Amends Ch. 9.04, solid waste management (9.04)
16565	Rezone (Special)
16566	Rezone (Special)
16567	Grants special permit ZON06-00133 (Special)
16568	Releases zoning conditions for property rezoned in Ord. 11388 (Special)
16569	Rezone (Special)
16570	Grants special permit ZON06-00151 (Special)
16571	Grants special permit ZON06-00127 (Special)
16572	Rezone (Special)
16573	Grants special permit ZON06-00144 (Special)
16574	Amends §§ 12.21.020 and 12.21.050; repeals § 12.21.090, dangerous intersection monitoring system and enforcement (12.21)
16575	Authorizes city manager to execute tax resale quitclaim deed (Special)
16576	Authorizes city manager to execute tax resale quitclaim deed (Special)
16577	Authorizes city manager to execute tax resale quitclaim deed (Special)
16578	Authorizes city manager to execute tax resale quitclaim deed (Special)
16579	Authorizes city manager to execute tax resale quitclaim deed (Special)
16580	Authorizes city manager to execute tax resale quitclaim deed (Special)
16581	Rezone (Special)
16582	Rezone (Special)
16583	Releases zoning condition for property rezoned in Ord. 13894 (Special)
16584	Grants special permit ZON06-00101 (Special)
16585	Incorporates open space master plan into city's comprehensive plan (Special)
16586	Rezone (Special)
16587	Grants special permit ZON06-00162 (Special)
16588	Rezone (Special)
16589	Vacates portion of Dakota Street right-of-way (Special)
16590	Repeals Ord. 16538 (Repealer)
16591	Amends § 12.88.200, schedules (12.88)
16592	Amends § 12.44.180, stopping, standing and parking generally (12.44)
16593	Rezone (Special)
16594	Rezone (Special)
16595	Amends § 12.88.200, schedules (12.88)
16596	Amends § 12.88.041, schedules (12.88)
16597	Amends § 12.88.040, schedules (12.88)
16598	Grants special privilege for temporary street closure (Special)

Ordinance Number	
16599	Adds § 10.24.040, miscellaneous offenses (10.24)
16600	Grants special privilege for temporary street closure (Special)
16601	Rezone (Special)
16602	Rezone (Special)
16603	Closes public hearing and levies assessments for certain improvement costs (Special)
16604	Authorizes city manager to sign lease agreement (Special)
16605	Authorizes issuance of "El Paso Public Improvement District No. 1 (Thunder Canyon) Special Assessment Revenue Bonds, Series 2007" (Special)
16606	Rezone (Special)
16607	Grants special permit No. ZON06-00128 (Special)
16608	Grants special permit No. ZON07-00001 (Special)
16609	Grants special privilege to allow parking, signage, landscaping, vehicular and pedestrian traffic (Special)
16610	Alley vacation (Special)
16611	Alley vacation (Special)
16612	Amends § 15.08.120, street rentals (15.08)
16613	Authorizes quit claim deed (Special)
16614	Rezone (Special)
16615	Right-of-way vacation (Special)
16616	Amends § 12.88.030, schedules (12.88)
16617	Amends § 12.88.041, schedules (12.88)
16618	Amends §§ 9.04.060 and 9.04.400, solid waste management (9.04)
16619	Adds § 2.64.500; amends §§ 2.64.030, 2.64.120, 2.64.140, 2.64.160, 2.64.180, 2.64.190, 2.64.200, 2.64.220 and 2.64.260, city employees' pension fund; repeals § 2.64.041 (2.64)
16620	Authorizes sale and issuance of tax and revenue certificates of obligation (Special)
16621	Provides issuance of general obligation bonds (Special)
16622	Authorizes conservation easement agreement (Special)
16623	Rezone (Special)
16624	Repeals and replaces Ch. 5.54, sexually oriented businesses (5.54)
16625	Repeals Ch. 2.80 (Repealer)
16626	Authorizes city to sell portion of Lot 20, Block 41, Magoffin Addition (Special)
16627	Authorizes mayor to sign license agreement (Special)
16628	Amends § 12.08.230, administration and enforcement (12.08)
16629	Annexation (Special)
16630	Annexation (Special)
16631	Annexation (Special)
16632	Rezone (Special)
16633	Grants special permit No. ZON06-00146 (Special)
16634	Rezone (Special)
16635	Rezone (Special)
16636	Alley vacation (Special)
16637	Right-of-way vacation (Special)
16638	Grants special privilege for temporary street closure (Special)
16639	Grants special privilege to permit encroachment of portion of public right-of-way (Special)

Ordinance Number	
16640	Grants special privilege for temporary street closure (Special)
16641	Grants special privilege for temporary street closure (Special)
16642	Amends 2025 proposed thoroughfare system (Special)
16643	Amends §§ 12.88.180 and 12.88.200, schedules (12.88)
16644	Amends § 12.88.030, schedules (12.88)
16645	Amends § 12.88.040, schedules (12.88)
16646	Amends § 12.88.150, schedules (12.88)
16647	Authorizes mayor to grant franchise for Dominion Ambulance, LLC (Special)
16648	Authorizes quit claim deed (Special)
16649	Rezone (Special)
16650	Rezone (Special)
16651	Amends 2025 proposed thoroughfare system (Special)
16652	Alley vacation (Special)
16653	Repeals and replaces T. 20, zoning (20.02, 20.04, 20.06, 20.08, 20.10, 20.12, 20.14, 20.16, 20.20, 20.22, 20.24)
16654	Adds Ch. 18.46, landscape (18.46)
16655	Amends § 18.02.109.2.5, permit fees (18.02)
16656	Repeals Ch. 9.20 (Repealer)
16657	Adds Ch. 9.11, tree care (9.11)
16658	Amends § 2.30.060, construction board of appeals (2.30)
16659	Adds Chs. 5.30, 5.34 and 5.94, business taxes, licenses and regulations (5.30, 5.34, 5.94)
16660	Repeals Ord. 13472, twelve travelers review committee (Repealer)
16661	Authorize quit claim portion (Special)
16662	Authorizes city to sell portions of Lots 2, 3, 4, 5, 24, 25, 26 and portion of Tract 1 and Block 89-A (Special)
16663	Amends §§ 19.12.090 and 19.12.120, subdivisions (19.12)
16664	Amends § 13.20.110, miscellaneous street and sidewalk use regulations (Repealed by 16792)
16665	Grants non-exclusive franchise for litter receptacles on sidewalks (Special)
16666	Grants franchise to Elite Medical Transport (Special)
16667	Authorizes issuance of taxable general obligation pension bonds (Special)
16668	Establishes municipal drainage utility system (Special)
16669	Rezone (Special)
16670	Rezone (Special)
16671	Rezone (Special)
16672	Grants special permit No. ZON07-00034 (Special)
16673	Rezone (Special)
16674	Authorizes certain lease agreement (Special)
16675	Rezone (Special)
16676	Rezone (Special)
16677	Rezone (Special)
16678	Rezone (Special)
16679	Amends §§ 9.12.125 and 9.12.830, subdivisions (9.12)
16680	Repeals Ch. 2.96 (Repealer)
16681	Rezone (Special)
16682	Rezone (Special)
16683	Rezone (Special)
16684	Rezone (Special)

Ordinance Number	
16685	Amends §§ 19.04.040, 19.04.110, 19.08.030—19.08.060, 19.08.080, 19.08.100, 19.12.030, 19.12.050, 19.12.080, 19.16.020, 19.16.050, 19.16.060, 19.16.080, 19.16.140, 19.20.030, 19.28.010, 19.28.040, 19.28.050, 19.32.010, 19.36.010, subdivisions (19.04, 19.08, 19.12, 19.16, 19.20, 19.28, 19.32, 19.36)
16686	Grants special privilege for temporary street closure (Special)
16687	Grants special privilege for temporary street closure (Special)
16688	Annexation (Special)
16689	Amends § 12.88.030, schedules (12.88)
16690	Amends § 12.88.150, schedules (12.88)
16691	Amends § 12.88.150, schedules (12.88)
16692	Amends §§ 12.88.180 and 12.88.200, schedules (12.88)
16693	Authorizes city to sell portion of Block 38 (Special)
16694	Authorizes city to sell portion of Tract 4A-31A, Block 2 (Special)
16695	Authorizes issuance of water and sewer revenue refunding bonds (Special)
16696	Rezone (Special)
16697	Amends § 15.08.120, street rentals (15.08)
16698	Adopts modifications to 2025 proposed thoroughfare system (Special)
16699	Adds §§ 18.08.175, 18.10.055 and 18.12.045; amends § 18.50.100.6, building and construction (18.08, 18.10, 18.12, 18.50)
16700	Amends § 5.54.230, sexually oriented businesses (5.54)
16701	Rezone (Special)
16702	Rezone (Special)
16703	Rezone (Special)
16704	Rezone (Special)
16705	Rezone (Special)
16706	Rezone (Special)
16707	Authorizes city manager to execute tax resale quit claim deed (Special)
16708	Rezone (Special)
16709	Grants special permit ZON07-00051 (Special)
16710	Grants special permit ZON07-00052 (Special)
16711	Grants special permit ZON07-00038 (Special)
16712	Amends Ord. 8065, civil service rules and regulations (Special)
16713	Rezone (Special)
16714	Rezone (Special)
16715	Annexation (Special)
16716	Annexation (Special)
16717	Rezone (Special)
16718	Rezone (Special)
16719	Rezone (Special)
16720	Amends § 12.88.030, schedules (12.88)
16721	Amends § 12.88.150, schedules (12.88)
16722	Rezone (Special)
16723	Vacates portions of dam site and drainage right-of-way (Special)
16724	Amends §§ 5.24.010 and 5.24.150; repeals § 5.24.020, charitable solicitations (5.24)
16725	Alley vacation (Special)
16726	Amends Ord. 8065, civil service rules and regulations (Special)
16727	Authorizes city manager or department head to enter into and sign certain contracts; repeals Ord. 16072 (Special)

Ordinance Number	
16728	Amends §§ 12.88.030 and 12.88.040, schedules (12.88)
16729	Amends Ord. 8064, classification and compensation plan (Special)
16730	2008 tax levy (Special)
16731	Rezone (Special)
16732	Rezone (Special)
16733	Grants special permit ZON07-00044 (Special)
16734	Rezone (Special)
16735	Authorizes city manager to execute special warranty deeds (Special)
16736	Amends Ord. 16015, authorizes city manager to enter into and sign certain contracts (Special)
16737	Rezone (Special)
16738	Amends 2025 proposed thoroughfare system (Special)
16739	Amends § 12.88.030, schedules (12.88)
16740	Amends § 12.88.150, schedules (12.88)
16741	Amends § 12.44.180, stopping, standing and parking generally (12.44)
16742	Amends § 12.88.030, schedules (12.88)
16743	Amends §§ 12.88.030 and 12.88.180, schedules (12.88)
16744	Grants special permit ZON07-00076 (Special)
16745	Rezone (Special)
16746	Amends effective date of Ord. 16653 to November 1, 2007 (20.02, 20.04, 20.06, 20.08, 20.10, 20.12, 20.14, 20.16, 20.20, 20.22, 20.24)
16747	Amends effective date of Ord. 16659 to November 1, 2007 (5.30, 5.34, 5.94)
16748	Amends effective date of Ord. 16654 to November 1, 2007 (18.46)
16749	Establishes policy sale and use tax rebates (Special)
16750	Authorizes city manager to execute tax resale quit claim deed (Special)
16751	Authorizes city manager to execute tax resale quit claim deed (Special)
16752	Rezone (Special)
16753	Rezone (Special)
16754	Rezone (Special)
16755	Utility easement vacation (Special)
16756	Repeals Ords. 8611, 9969, 10991, 11655, 12159, 12958 and 13647 (Repealer)
16757	Amends § 12.88.041, schedules (12.88)
16758	Amends § 12.88.200, schedules (12.88)
16759	Grants special permit ZON07-00068 (Special)
16760	Rezone (Special)
16761	Amends §§ 20.02.942, 20.02.1160, Appendix A of 20.08.030, 20.10.260, 20.10.400, Appendix B of 20.12.020 and Appendix C of 20.14.050; repeals and replace Ch. 20.18, various provisions; repeals § 20.02.238 (20.02, 20.08, 20.10, 20.12, 20.14, 20.18)
16762	Rezone (Special)
16763	Authorizes city manager to execute special warranty deeds (Special)

Ordinance Number	
16764	Adds §§ 2.40.080 and 2.40.090; amends §§ 2.40.010—2.40.070, department of museums and cultural affairs (2.40)
16765	Rezone (Special)
16766	Rezone (Special)
16767	Grants special permit ZON07-00071 (Special)
16768	Utility easement vacation (Special)
16769	Grants franchise to Elite Medical Transport (Special)
16770	Rezone (Special)
16771	Rezone (Special)
16772	Easement vacation (Special)
16773	Adds Ch. 9.02, department of public health (9.02)
16774	Grants special permit ZON07-00073 (Special)
16775	Rezone (Special)
16776	Amends Ord. 16735, authorizes city manager to execute special warranty deeds (Special)
16777	Amends § 12.88.030, schedules (12.88)
16778	Grants special permit ZON07-00085 (Special)
16779	Grants special permit ZON07-00086 (Special)
16780	Rezone (Special)
16781	Rezone (Special)
16782	Rezone (Special)
16783	Releases zoning condition for property rezoned in Ord. 16386 (Special)
16784	Rezone (Special)
16785	Rezone (Special)
16786	Rezone (Special)
16787	Grants franchise to Life Ambulance Service, Inc. (Special)
16788	Rezone (Special)
16789	Rezone (Special)
16790	Rezone (Special)
16791	Alley vacation (Special)
16792	Repeals and replaces § 13.20.110, miscellaneous street and sidewalk use regulations (13.20)
16793	Grants a new non-exclusive franchise to Bench Ads of El Paso, Inc.; rescinds Ord. 15615 (Special)
16794	Grants a new non-exclusive franchise to Pinnacle Media, L.L.C.; rescinds Ord. 14003 (Special)
16795	Grants a new non-exclusive franchise to Otto H. Maser, Jr.; rescinds Ord. 13857 (Special)
16796	Grants a new non-exclusive franchise to Oliva Manufactured Home Sales, Inc. d/b/a Southwest Bench Ads; rescinds Ord. 13753 (Special)
16797	Amends §§ 2.64.120 and 2.64.130, city employees' pension fund (2.64)
16798	Tangible personal property tax (Special)
16799	Rezone (Special)
16800	Rezone (Special)
16801	Rezone (Special)
16802	Amends §§ 19.04.040, 19.04.120, 19.08.040—19.08.070, 19.12.020, 19.12.080, 19.20.020, 19.44.030 and 19.48.030, subdivisions; repeals Ords. 14836 and 15008 (19.04, 19.08, 19.12, 19.20, 19.44, 19.48)
16803	Amends Ord. 16528, designates reinvestment zone (Special)
16804	Amends Ord. 16528, designates reinvestment zone (Special)
16805	Amends § 12.88.030, schedules (12.88)

Ordinance Number	
16806	Amends § 17.16.010, inspections and certificates; repeals §§ 17.08.160—17.08.210, 17.16.050 (17.16)
16807	Adds § 7.04.100; amends §§ 7.04.010—7.04.030, 7.04.050, 7.04.060, 7.04.090, 7.08.010, 7.08.020, 7.08.060, 7.08.070, 7.12.010, 7.12.020, 7.12.060, 7.16.020, 7.20.010, 7.24.010, 7.24.020, 7.24.060 and 7.24.070, various provisions (7.04, 7.08, 7.12, 7.16, 7.20, 7.24)
16808	Amends § 3.32.100, abandoned, lost, stolen and unclaimed property (3.32)
16809	Amends § 2.38.020, building and standards commission (2.38)
16810	Amends §§ 5.08.110, 5.08.120, 5.32.020, 5.32.060, 5.32.070, 5.32.090—5.32.130, 5.32.150, 5.32.160, 5.44.260, 5.48.020, 5.48.050, 5.48.130, 5.48.160, 5.48.190, 5.96.010, 5.96.020, 5.96.050, 5.96.060 [5.96.070], 5.96.080, 5.96.100 and 5.96.110, various provisions (5.08, 5.32, 5.44, 5.48, 5.96)
16811	Amends §§ 6.04.040, 6.34.060, 6.34.070, 6.34.130, 6.34.160, 6.40.040, 6.40.060 and 6.40.090—6.40.120, various provisions (6.04, 6.34, 6.40)
16812	Amends §§ 9.04.220, 9.04.230, 9.04.250, 9.04.310, 9.04.320, 9.04.370, 9.10.020, 9.10.030, 9.11.010, 9.12.005—9.12.050, 9.12.070—9.12.100, 9.12.125—9.12.150, 9.12.200, 9.12.210—9.12.240, 9.12.280, 9.12.310, 9.12.340, 9.12.400, 9.12.420, 9.12.600, 9.12.780—9.12.870, 9.12.880, 9.24.010, 9.24.030—9.24.050, 9.28.030, 9.28.060—9.28.090, 9.32.010—9.32.040, 9.32.060, 9.32.080, 9.32.130—9.32.150, 9.36.010, 9.36.050, 9.36.060, 9.36.090, 9.38.020, 9.38.040, 9.40.010, 9.40.100, 9.40.130, 9.44.010—9.44.050, 9.44.070, 9.44.090, 9.44.100, 9.44.120, 9.44.160, 9.44.270, 9.44.300, 9.44.320, 9.48.010, 9.48.040, 9.48.050, 9.48.070—9.48.090, 9.48.120, 9.48.150, 9.48.160, 9.48.250, 9.48.260, 9.50.030, 9.50.100, 9.50.110, 9.52.010, 9.52.030, 9.52.040, 9.52.070, 9.52.100—9.52.120, 9.52.140, 9.84.010 and 9.84.050, various provisions; repeals §§ 9.12.700 and 9.84.040 (9.04, 9.10, 9.11, 9.12, 9.24, 9.28, 9.32, 9.36, 9.38, 9.40, 9.44, 9.48, 9.50, 9.52, 9.84)
16813	Rezone (Special)
16814	Rezone (Special)
16815	Rezone (Special)
16816	Amends §§ 19.04.040, 19.04.180, 19.16.070, 19.16.110, 19.24.020, and 19.24.030, subdivisions (19.04, 19.16, 19.24)
16817	Amends §§ 20.04.010, 20.04.100, 20.10.140, 20.10.150, 20.10.180, 20.10.450, 20.10.490, 20.10.520 and 20.10.580, zoning (20.04, 20.10)
16818	Amends §§ 18.02.103.1.1.6.5, 18.02.103.4.3.6, 18.02.103.9.5, 18.20.080, 18.21.010, 18.21.020, 18.21.060, 18.21.080, 18.21.130—18.21.150 and 18.21.300, various provisions (18.02, 18.21)

Ordinance Number	
16819	Amends §§ 13.08.175 and 13.20.040, various provisions (13.08, 13.20)
16820	Amends § 14.20.230, airport vehicular traffic regulations (14.20)
16821	Amends § 10.12.010, offenses against public peace (10.12)
16822	Amends §§ 15.12.055, 15.13.050 and 15.20.070, various provisions (15.12, 15.13, 15.20)
16823	Rezone (Special)
16824	Rezone (Special)
16825	Rezone (Special)
16826	Amends § 20.10.455, zoning (20.10)
16827	Amends § 12.88.200, schedules (12.88)
16828	Authorizes issuance of water and sewer revenue refunding bonds (Special)
16829	Rezone (Special)
16830	Amends § 20.20.120, zoning (20.20)
16831	Rezone (Special)
16832	Authorizes license agreement (Special)
16833	Rezone (Special)
16834	Amends Ord. 16428, changes three divisions of Municipal Court Number Four (Special)
16835	Authorizes city to sell portion of land (Special)
16836	Rezone (Special)
16837	Rezone (Special)
16838	Rezone (Special)
16839	Rezone (Special)
16840	Rezone (Special)
16841	Rezone (Special)
16842	Grants special privilege for permitting outdoor encroachment (Special)
16843	Provides issuance of general obligation bonds (Special)
16844	Provides issuance of general obligation refunding bonds (Special)
16845	Rezone (Special)
16846	Amends § 12.88.030, schedules (12.88)
16847	Amends § 12.88.150, schedules (12.88)
16848	Grants special permit ZON07-00153 (Special)
16849	Grants special permit ZON07-00151 (Special)
16850	Extends term of Ord. 16013, grants special privilege (Special)
16851	Amends § 12.88.180, schedules (12.88)
16852	Amends § 12.88.200, schedules (12.88)
16853	Authorizes city to sell portion of land (Special)
16854	Authorizes city to sell portion of land (Special)
16855	Amends § 15.08.120, street rentals (15.08)
16856	Amends § 13.04.020, street and sidewalk construction and maintenance (13.04)
16857	Rezone (Special)
16858	Rezone (Special)
16859	Grants special permit ZON07-00084 (Special)
16860	Rezone (Special)
16861	Rezone (Special)
16862	Rezone (Special)
16863	Rezone (Special)
16864	Rezone (Special)
16865	Rezone (Special)
16866	Grants special permit ZON07-00165 (Special)

Ordinance Number	
16867	Adds §§ 18.10.310.1 and 18.10.310.101—18.10.310.108; amends §§ 18.10.310, residential *code (Repealed by 16938)*
16868	Amends § 12.88.030, schedules (12.88)
16869	Amends § 12.88.010, schedules (12.88)
16870	Amends § 12.88.200, schedules (12.88)
16871	Amends § 12.88.030, schedules (12.88)
16872	Amends § 12.85.020, parking violations bureau (12.85)
16873	Amends Ch. 12.21, photographic traffic signal enforcement system (12.21)
16874	Grants special privilege for permitting outdoor encroachment (Special)
16875	Amends §§ 18.10.310, residential code (Repealed by 16938)
16876	Grants special privilege for permitting outdoor encroachment (Special)
16877	Amends §§ 20.04.160, 20.04.260 and 20.04.370, zoning (20.04)
16878	Amends §§ 19.08.030, 19.40.010, 19.44.010, 19.44.060 and 19.48.010, various provisions (19.08, 19.40, 19.44, 19.48)
16879	Amends §§ 20.20.080; repeals and replaces § 20.20.150, zoning (20.20)
16880	Amends §§ 18.02.109.2.2, 18.02.109.2.4 and 18.44.150, building and construction administrative code and grading (18.02, 18.44)
16881	Amends § 5.94.010, sign permit fees, licenses and bonds (5.94)
16882	Amends T. 19, subdivisions (19.01, 19.02, 19.03, 19.04, 19.06, 19.07, 19.08, 19.09, 19.10, 19.11, 19.12, 19.13, 19.14, 19.15, 19.16, 19.17, 19.18, 19.19, 19.20, 19.21, 19.22, 19.23, 19.24, 19.25, 19.26, 19.30, 19.31, 19.32, 19.33, 19.34, 19.37, 19.38, 19.39, 19.40, 19.41, 19.42, 19.43, 19.45, 19.46, 19.47, 19.48, 19.50)
16883	Amends Ord. 16735, authorizes city manager to execute special warranty deeds (Special)
16884	Amends § 3.04.035, property taxes (3.04)
16885	Designates reinvestment zone (Special)
16886	Grants special permit ZON08-00002 (Special)
16887	Rezone (Special)
16888	Repeals and replaces Ch. 2.16, zoning board of adjustment (2.16)
16889	Grants special permit ZON07-00166 (Special)
16890	Amends § 12.44.100, stopping, standing and parking (12.44)
16891	Amends § 12.88.180, schedules (12.88)
16892	Amends § 12.88.200, schedules (12.88)
16893	Rezone (Special)
16894	Rezone (Special)
16895	Vacates portions of Mills Avenue and Anson Mills Map (Special)
16896	Amends §§ 18.02.103.1.1.6.1, 18.02.103.1.1.6.2, 18.02.103.9.1.2.1.1—18.02.103.9.1.2.1.4, zoning (18.02)
16897	Amends § 18.44.070, zoning (18.44)

Ordinance Number	
16898	Adds Appendix 111 to Title 19, subdivisions (Title 19 Appendix)
16899	Amends § 12.88.200, schedules (12.88)
16900	Amends § 12.88.180, schedules (12.88)
16901	Amends Ord. 8065, civil service rules and regulations (Special)
16902	Amends § 12.88.180, schedules (12.88)
16903	Rezone (Special)
16904	Rezone (Special)
16905	Amends § 20.10.370, zoning (20.10)
16906	Amends § 20.04.380, zoning (20.04)
16907	Amends § 20.04.550, zoning (20.04)
16908	Amends § 12.28.010, speed limits (12.28)
16909	Amends §§ 20.18.470 and 20.18.480, zoning (20.18)
16910	Amends 2025 proposed thoroughfare system (Special)
16911	Adopts United States Green Building Council — Leader in Energy and Environmental Design (LEED) Silver Certification (Special)
16912	Amends §§ 19.19.010 and 19.50.030, subdivisions (19.19, 19.50)
16913	Repeals § 12.76.080 (Repealer)
16914	Rezone (Special)
16915	Amends § 20.04.140, Art. IV of Ch. 20.04, 20.06.020, 20.10.360 and Appendix A of Title 20, zoning (20.04, 20.06)
16916	Annexation (Special)
16917	Rezone (Special)
16918	Rezone (Special)
16919	Grants special privilege for permitting outdoor encroachment (Special)
16920	Grants special privilege for permitting outdoor encroachment (Special)
16921	Amends §§ 19.31.070 and 19.31.080, subdivisions (19.31)
16922	Rezone (Special)
16923	Grants special permit ZON08-00032 (Special)
16924	Rezone (Special)
16925	Grants a non-exclusive franchise to River Elms, LLC (Special)
16926	Grants a non-exclusive franchise to Alta Vista Construction Group, LLC (Special)
16927	Amends non-exclusive bus bench franchise to Oliva Manufactured Home Sales, Inc. (Special)
16928	Amends non-exclusive bus bench franchise to Otto H. Maser, Jr. (Special)
16929	Amends non-exclusive bus bench franchise to Bench Ads (Special)
16930	Authorizes city manager to execute special warranty deeds (Special)
16931	Authorizes city manager to execute special warranty deeds (Special)
16932	Authorizes city manager to execute special warranty deeds (Special)
16933	Repeals Ch. 2.06 (Repealer)
16934	Amends § 12.88.030, schedules (12.88)
16935	Amends § 12.88.200, schedules (12.88)
16936	Rezone (Special)
16937	Rezone (Special)

Ordinance Number	
16938	Amends § 18.10.310, residential code; repeals Ords. 16867 and 16875 (18.10)
16939	Rezone (Special)
16940	Rezone (Special)
16941	Vacates portions of Denver Street (Special)
16942	Rezone (Special)
16943	Grants special permit ZON08-00044 (Special)
16944	Grants special permit ZON08-00045 (Special)
16945	Adds T. 21, smart code (21.10, 21.20, 21.30, 21.40, 21.50, 21.60, 21.70, 21.80)
16946	Rezone (Special)
16947	Rezone (Special)
16948	Rezone (Special)
16949	Grants special privilege (Special)
16950	Amends § 12.88.030, schedules (12.88)
16951	Amends Ord. 8065, civil service rules and regulations (Special)
16952	Authorizes city manager to execute tax resale quit claim deed (Special)
16953	Authorizes city manager to execute tax resale quit claim deed (Special)
16954	Rezone (Special)
16955	Rezone (Special)
16956	Rezone (Special)
16957	Adds § 12.54.060; amends §§ 12.54.010 and 12.54.040, towing regulations and fees (12.54)
16958	Authorizes city manager to sign lease agreement (Special)
16959	Rezone (Special)
16960	Amends The Plan for El Paso and the Year 2025 General Land Use Map (Special)
16961	Amends 2025 Proposed Thoroughfare System (Special)
16962	Grants special privilege (Special)
16963	Approves special privilege to permitting encroachment of canopies (Special)
16964	Setting fire department medical services system fee schedule (Special)
16965	Amends § 18.10.310, residential code (18.10)
16966	Amends § 2.110.010; amends and renumbers § 2.110.070 to become § 2.110.020, city organizational structures; repeals §§ 2.110.030—2.110.050 and 2.110.090 (2.110)
16967	Amends § 9.12.125, food and food handling establishments (9.12)
16968	Amends § 9.12.830, food and food handling establishments (9.12)
16969	Adds Ch. 13.02, street and international bridges departments (13.02)
16970	Amends § 12.78.010, international bridges (12.78)
16971	Amends Ords. 11598, 11902 and 15748, international bridge commission (Special)
16972	2009 tax levy (Special)
16973	Authorizes issuance and sale of bonds (Special)
16974	Rezone (Special)
16975	Rezone (Special)
16976	Rezone (Special)
16977	Amends § 2.08.010, city plan commission (2.08)
16978	Amends § 2.38.020, building and standards commission (2.38)

Ordinance Number	
16979	Amends §§ 5.04.030—5.04.060, 5.04.080, 5.08.020, 5.08.060, 5.08.080, 5.08.110—5.08.130, 5.08.150, 5.08.160, 5.16.040—5.16.060, 5.16.080, 5.16.090, 5.24.010, 5.24.030, 5.24.040, 5.24.070, 5.24.080, 5.24.140, 5.30.010, 5.32.010, 5.32.030—5.32.090, 5.32.110, 5.32.120, 5.32.150, 5.34.010, 5.36.030, 5.36.060, 5.36.090, 5.44.040, 5.44.100, 5.44.260, 5.48.020, 5.48.050, 5.54.020, 5.60.020, 5.60.030, 5.72.020, 5.72.050, 5.76.020, 5.84.040—5.84.080, 5.84.130, 5.84.240, 5.88.020—5.88.060, 5.90.020, 5.90.030, 5.94.010, 5.100.030—5.100.050, 5.100.080, 5.100.090, 5.104.020, 5.104.030, 5.104.060—5.100.080 [5.104.080] and 5.112.010, various provisions (5.04, 5.08, 5.16, 5.24, 5.30, 5.32, 5.34, 5.36, 5.44, 5.48, 5.54, 5.60, 5.72, 5.76, 5.84, 5.88, 5.90, 5.94, 5.100, 5.104, 5.112)
16980	Amends §§ 9.12.030, 9.12.580, 9.32.030, 9.32.040, 9.48.030, 9.50.110 and 9.52.040, various provisions (9.12, 9.32, 9.48, 9.50, 9.52)
16981	Amends § 12.44.190, stopping, standing and parking generally (12.44)
16982	Amends §§ 13.04.010, 13.04.015, 13.04.045, 13.04.050, 13.04.070, 13.08.175, 13.12.020, 13.12.040, 13.12.080, 13.12.095, 13.12.170 and 13.20.040, various provisions (13.04, 13.08, 13.12, 13.20)
16983	Amends § 15.08.120, street rentals (15.08)
16984	Amends §§ 17.04.030, 17.04.040, 17.04.070, 17.08.220, 17.12.030, 17.12.140 and 17.16.030, housing (17.04, 17.08, 17.12)
16985	Amends §§ 18.02.101.4, 18.02.101.4.1—18.02.101.4.4, 18.02.101.4.6, 18.02.101.4.8, 18.02.101.5.1.1, 18.02.101.5.2, 18.02.102, 18.02.102.1, 18.02.102.2.1, 18.02.102.2.2, 18.02.102.3, 18.02.102.4.1—18.02.102.4.3, 18.02.102.6, 18.02.102.7, 18.02.102.9, 18.02.102.10, 18.02.103.1.1, 18.02.103.1.1.3, 18.02.103.1.1.4, 18.02.103.1.1.4.1, 18.02.103.1.1.4.2, 18.02.103.1.1.6.1—18.02.103.1.1.6.4, 18.02.103.1.1.7, 18.02.103.1.2.2, 18.02.103.1.3—18.02.103.1.6, 18.02.103.2.1—18.02.103.2.3, 18.02.103.2.5, 18.02.103.2.6, 18.02.103.3.1, 18.02.103.3.2, 18.02.103.4.1, 18.02.103.4.2, 18.02.103.4.3.1—18.02.103.4.3.5, 18.02.103.4.3.7, 18.02.103.4.4.1, 18.02.103.6.1—18.02.103.6.3, 18.02.103.7.1, 18.02.103.7.3, 18.02.103.7.5, 18.02.103.8.1—18.02.103.8.5, 18.02.103.8.6.1—18.02.103.8.6.3, 18.02.103.8.7, 18.02.103.8.7.1, 18.02.103.8.8—18.02.103.8.10, 18.02.103.9.1.1, 18.02.103.9.1.2, 18.02.103.9.1.2.1.2, 18.02.103.9.1.2.1.4, 18.02.103.9.1.2.1.5, 18.02.103.9.1.3, 18.02.103.9.1.4, 18.02.103.9.3.1—18.02.103.9.3.5, 18.02.103.9.5, 18.02.103.10.1—18.02.103.10.3, 18.02.104,

Ordinance Number	
	18.02.108.1.1, 18.02.108.1.2.2—18.02.108.1.2.7, 18.02.108.2.1—18.02.108.2.3, 18.02.108.2.5, 18.02.108.2.6, 18.02.108.2.9, 18.02.108.3.1, 18.02.108.3.4—18.02.108.3.9, 18.02.108.3.11, 18.02.108.4.2, 18.02.108.4.4, 18.02.108.5.1, 18.02.108.5.2, 18.02.109.2.4, 18.02.109.2.7, 18.02.109.3.1, 18.02.109.5.1, 18.02.109.6.1, 18.02.110.3, 18.02.110.5, 18.02.110.8, 18.02.110.9, 18.10.060, 18.12.060, 18.16.040, 18.16.080, 18.18.060, 18.20.070, 18.20.080, 18.20.230, 18.21.060, 18.36.020, 18.44.030—18.44.060, 18.44.080—18.44.140, 18.44.160, 18.44.180—18.44.220, 18.46.050, 18.46.100, 18.46.130—18.46.170, 18.48.010, 18.50.050, and 18.60.180, various provisions; repeals §§ 18.02.108.2.3, 18.02.108.2.7 and 18.02.108.2.8 (18.02, 18.10, 18.12, 18.16, 18.18, 18.20, 18.21, 18.36, 18.44, 18.46, 18.48, 18.50, 18.60)
16986	Repeals Ords. 15703 and 16420 (Repealer)
16987	Amends §§ 13.36.030 and 13.36.050, parades and public assemblies (13.36)
16988	Amends §§ 2.77.010 and 2.77.030—2.77.050, city tree board (2.77)
16989	Amends § 13.25.010, El Paso zoo (13.25)
16990	Rezone (Special)
16991	Amends Ord. 8065, civil service rules and regulations (Special)
16992	Grants special permit ZON08-00038 (Special)
16993	Rezone (Special)
16994	Grants special permit ZON08-00048 (Special)
16995	Rezone (Special)
16996	Extends term of Ord. 16013, grants special privilege (Special)
16997	Amends § 2.92.070, ethics (2.92)
16998	Authorizes issuance of water and sewer revenue bonds (Special)
16999	Authorizes issuance of water and sewer revenue bonds (Special)
17000	Rezone (Special)
17001	Adds § 20.02.897; amends §§ 20.18.140 and 20.18.400, zoning (20.02, 20.18)
17002	Grants special privilege for permitting an aerial and subsurface encroachment (Special)
17003	Vacates portion of Barney Street (Special)
17004	Authorizes city manager to execute tax resale quit claim deed (Special)
17005	Grants special permit ZON08-00050 (Special)
17006	Amends §§ 6.34.010 and 6.34.150, nonmotorized vehicles for hire (6.34)
17007	Repeals Ord. 15721 (Repealer)
17008	Amends Ord. 16971, international bridge commission (Special)
17009	Authorizes issuance of water and sewer revenue refunding bonds (Special)

Beginning with Supplement No. 73, this table will be replaced with the Code Comparative Table and Disposition List.

CODE COMPARATIVE TABLE AND DISPOSITION LIST

This is a chronological listing of the ordinances of El Paso, Texas beginning with Supplement No. 73, included in this Code.

Ordinance Number	Approval Date	Description	Section		Section this Code
17010	10-14-2008	Rezoning			Omitted
17011	10-14-2008	Rezoning			Omitted
17012	10-14-2008	Rezoning			Omitted
17013	10-14-2008	Amends types of changeable electronic variable message and digital signs allowed	1		20.02.897
			2		20.18.140.O
			3		20.18.400
			4	Added	20.18.400.11
17014	10-21-2008	Approving the Medical Center of the Americas Master Plan as a study area plan			Omitted
17015	10-28-2008	Vacating a portion of a 16-foot alley with Block 80, Alexander Addition			Omitted
17016	10-28-2008	Establishes the Capital Improvements Advisory Committee	1	Added	Ch. 2.80
17017	11- 4-2008	Rezoning			Omitted
17018	11- 4-2008	Special permit issuance			Omitted
17019	11- 4-2008	Authorizing the City of El Paso to sell all of Lots 1, 2, and 3, Block 107, Highland Park Addition,to Victor F. Nevarez d/b/a/ Sunset Carpets			Omitted
17020	11- 4-2008	Authorizing City Manager to execute a quitclaim			Omitted
17021	11- 4-2008	Authorizing City Manager to execute a quitclaim			Omitted
17022	11- 4-2008	Authorizing City Manager to execute a quitclaim			Omitted
17023	11- 4-2008	Authorizing City Manager to execute a quitclaim			Omitted
17024	11-11-2008	Rezoning			Omitted
17025	11-18-2008	Amending the 2025 Proposed Thoroughfare System			Omitted
17026	1-18-2008	Deleting § 12.88.010 Schedule I (one-way streets), Number 38, Oregon Street from Arizona Avenue to San Antonio Avenue	1	Rpld	12.88.010.38
17027	11-18-2008	Establishes a new section—"Sun Metro priority seating for seniors and mobility impaired passengers	1	Added	6.08.060
17028	12- 2-2008	Rezoning			Omitted
17029	12- 2-2008	Rezoning			Omitted
17030	12- 2-2008	An ordinance releasin conditions on property by Ordinance 009146			Omitted
17031	12- 2-2008	Adds 12.88.200, Schedule XII (restrictions on parking in residential districts), Zone Q (no parking 7:00 a.m. to 4:00 p.m., school days only), Milan Street from Quail Avenue to Naples Avenue, both sides	1	Added	12.88.200 (Zone Q)
17032	12- 2-2008	Deleting § 12.88.030, Schedule III (parking prohibited at all times on certain streets), Number 157, Lee Street between Magoffin Avenue and Olive Avenue, west side only	1	Rpld	12.88.030.157

Ordinance Number	Approval Date	Description	Section		Section this Code
17033	12- 2-2008	An ordinance authorizing the City Manager to execute a quitclaim			Omitted
17034	12- 2-2008	An ordinance authorizing the City Manager to execute a quitclaim			Omitted
17035	12- 9-2008	Rezoning			Omitted
17036	12- 9-2008	An ordinance granting special privilege to The El Paso Project, LLC permitting two accessibility ramps with stairs, a wall and a portion of a structure to encroach onto portions of public rights-of-way adjacent to property located at 300 South Florence Street			Omitted
17037	12- 9-2008	Parking requirements for motorcycles	1		12.44.030
17038	12- 9-2008	Establishes the animal welfare advisory committee	1	Added	Ch. 7.30
			2	Added	7.30.010—7.30.060
17039	12- 9-2008	Establishes an animal shelter advisory committee	1	Added	Ch. 7.28
			2	Added	7.28.010—7.28.060
17040	12-23-2008	An ordinance granting special privlege to Robins & Morton permitting the encroachment of an outdoor wmployee break area upon a portion of public right-of-way located beneath the Raynolds Street overpass north of Alberta Avenue			Omitted
17041	12-23-2008	Added a new chapter "Irrigation Systems	1	Added	Ch. 18.47,
					18.47.010—18.47.180
			2		18.46.120
17042	12-23-2008	An ordinance designating a Transportation Reinvestment Zon for El Paso			Omitted
17043	12-23-2008	Changes the references of the Deputy Director of Streets to International Bridges Director			12.56.010.A, B.,
					12.56.020.A, 12.56.070.B,
					12.56.080, 12.56.090,
					12.56.090.A, B.,
					12.56.100,
					12.56.110
17044	12-23-2008	An ordinance granting a license to BORDERCOMM Partners, LP to construct, maintian, and use a single conduit interduct on the Zaragoza International Bridge property for the purpose of installing fiber optic cable for its telecommunication network			Omitted
17045	1- 6-2009	An Ordinance changing the zoning of a portion of Tract 23A (n/k/a 23A1), Tracts 23B1, 24G, and 26D, Section 38, Block 81, Township 1, Texas and Pacific Railroad Company Surveys, City of El Paso, El Paso County, Texas, from C-1 (Commercial) to C-3 (Commercial)			Omitted
17046	1- 6-2009	An Ordinance granting Special Permit No. ZON07-00161 to allow for a hotel on the property described as a portion of Block 8, Castner Range Subdivision Unit One, City of El Paso, El Paso County, Texas, pursuant to Section 20.08.030 of the El Paso City Code			Omitted
17047	1- 6-2009	An Ordinance changing the zoning of a portion of Tract 182, Sunrise Acres Unit One, City of El Paso, El Paso County, Texas, from R-4 (Residential) to C-2 (Commercial) and imposing a condition			Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17048	1- 6-2009	An Ordinance amending Title 6 (Vehicles for Hire), Chapter 6.12 (Chauffeur's License), of the El Paso City Code to amend sections thereunder to create a qualified Chauffeur License for bicycles, pedicabs, and other similarly-operated vehicles that are operated as non-motorized vehicles for hire	1	6.12.020
17049	1-13-2009	An Ordinance changing the zoning of a portion of Lot 28, Block 22A, Vista Granada Unit Two Replat B, City of El Paso, El Paso County, Texas, from A-2/SC (Apartment/Special Contract) to C-1 (Commercial)		Omitted
17050	1-13-2009	An Ordinance changing the zoning of Lots 52 through 56, Block B, Bassett Addition, City of El Paso, El Paso County, Texas, from A-3 (Apartment) to S-D (Special Development)		Omitted
17051	1-13-2009	An Ordinance changing the zoning of Lot 58 and a portion of Lot 59, Block B, Bassett Addition, City of El Paso, El Paso County, Texas, from A-3 (Apartment) to S-D (Special Development)		Omitted
17052	1-13-2009	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.150 Schedule XIV (Speed Limits), G (Forty-Miles per Hour), of the El Paso City Code by adding Helen of Troy Drive between Desert North Boulevard and the east City Limits	1 Added	12.88.150.G.44
17053	1-13-2009	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.030 Schedule III (Parking Prohibited at All Times on Certain Streets), of the El Paso City Code by adding Helen of Troy Drive from Desert Boulevard north to a point five hundred feet east of Resler Drive	1 Added	12.88.060.442
17054	1-13-2009	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.030 Schedule III (Parking Prohibited at All Times on Certain Streets) of the El Paso City Code by amending Number 331 (Both Sides of Belvidere from Tudor Way to White Cliffs Drive) to Belvidere Street from Tudor Way to De Los Santos Way, Both Sides	1	12.88.030.331
17055	1-20-2009	An Ordinance authorizing the City Manager to sign a Lease Agreement between the City of El Paso and Teens In Action for the facility commonly known as the Ysleta Park Recreation Building located at 9068 Socorro Road, El Paso, Texas		Omitted
17056	1-27-2009	An Ordinance changing the zoning of the El Paso County Hospital District (Thomason General Hospital) tracts lying within Tobin's Fourth Addition to the City of El Paso as Recorded in Volume 4, Page 25, Plat Records of El Paso County, Texas, and a portion of F. Neve Survey No. 8, City of El Paso, El Paso County, Texas, comprising a portion of Said F. Neve Survey No. 8, Lots 1 through 22, Block 1, Lots 1 through 21, Block 2, Lots 1 through 24, Block 3, Lots 1 through 21, Block 4, Lots 1 through 16, Block 5, Lots 1 through 25, Block 7, Lots 1 through 26, Block 8, Lots 1 through 24, Block 9, Lots 1 through 12, Block 10, Lots 6 through 11, Block 11, all of Lots 4 and 5 and a portion of Lots 3 and 6, Block 12, of Said Tobin's Fourth Addition to the City of El Paso, El Paso County, Texas, and a portion of Lots 18, 19, and 20, Block 1, Lots 1 through 4 and 6 through 15 and all of Lot 5, Block 4, Val Verde Addition to the City of El Paso, El Paso County, Texas, from M-1 (Light Manufacturing), M-1/SP (Light Manufacturing/Special Permit) C-4 (Commercial), C-4/SC (Commercial/Special Contract), C-4/C (Commercial/Condition) to GMU/SP/C/SC (General Mixed Use/Special Permit/Condition/Special Contract) and approving a Master Zoning Plan		Omitted

Ordinance Number	Approval Date	Description	Section		Section this Code
17057	1-27-2009	An Ordinance granting Special Permit No. ZON08-00086, to allow a social club on the property described as Tracts 3-B, and 3-D-2, Ysleta Grant, City of El Paso, El Paso County, Texas, pursuant to Section 20.08.030 of the El Paso City Code			Omitted
17058	1-27-2009	An Ordinance granting Special Permit No. ZON08-00056, to allow medical offices on the property described as Lot 10, Block 3, Alameda Acres, City of El Paso, El Paso County, Texas, pursuant to Section 20.08.030 of the El Paso City Code			Omitted
17059	1-27-2009	An Ordinance changing the zoning of lots 34 and 35, save and except that portion of Lot 35, Pendale Industrial Unit B, City of El Paso, El Paso County, Texas, from P-I (Planned Industrial) to C-4 (Commercial)			Omitted
17060	1-27-2009	An Ordinance changing the zoning of the following real property described as: Parcel 1: Lots 11 to 20, Block 214, Campbell Addition, City of El Paso, El Paso County, Texas, be changed from C-4 (Commercial) to RMU (Residential Mixed Use); and, Parcel 2: Lots 7 to 10, Block 214, Campbell Addition, City of El Paso, El Paso County, Texas, be changed from C-4/H (Commercial/Historic) to RMU/H (Residential Mixed Use/Historic); and, Parcel 3: Lots 1 to 3 and west 20 feet of 4, Lots 5 and east 5 feet of 4, Lots 6 and west 15 feet of 7, Block 1, Franklin Heights Addition, City of El Paso, El Paso County, Texas, be changed from C-4/H (Commercial/Historic) to RMU/H (Residential Mixed Use/Historic); and, Parcel 4: Lots 17 to 19, Block 1, Franklin Heights Addition, City of El Paso, El Paso County, Texas, be changed from A-3/H (Apartment/Historic), to RMU/H (Residential Mixed Use/Historic) and approving a Master Zoning Plan. And repealing Ordinance 15381 which granted a special permit for off-street, off-site parking			Omitted
17061	1-27-2009	An Ordinance vacating a portion of Ange Street located between Block 1 Franklin Heights Addition and Block 214 Campbell Addition, City of El Paso, El Paso County, Texas			Omitted
17062	1-27-2009	An Ordinance vacating a portion of a 20-foot wide alley between Lots 11 - 14 and 7 - 10, Block 214 Campbell Addition and a portion of an 18-foot wide alley between Lots 1—3 and 17—19, Block 1 Franklin Heights Addition, City of El Paso, El Paso County, Texas			Omitted
17063	1-27-2009	An Ordinance authorizing the City of El Paso to sell approximately 4.74 acres of land being a portion of Tracts 18B and 19B, Block 54, Ysleta Grant Surveys, El Paso, El Paso County, Texas, to Instituto de Fomento Familiar Inc., d/b/a Centro Familiar Vino Nuevo de El Paso			Omitted
17064	1-27-2009	An Ordinance authorizing the issuance of "City of El Paso, Texas, Combination Tax and Revenue Certificates of Obligation, Series 2009" and resolve matters which are necessary to effectuate said issuance			Omitted
17065	2- 3-2009	An Ordinance amending Title 12, to remove limits on the parking time, Texas Avenue, south side of avenue	1		12.88.060.A.54
17066	2- 3-2009	An Ordinance amending Title 12, No stopping or standing—tow-away zone	1	Added	12.88.180.A.112., 113
17067	2- 3-2009	An Ordinance amending Title 12, Parking prohibited during certain hours on certain streets	1	Added	12.88.040.H.4
17068	2- 3-2009	An Ordinance amending Title 12, Schedule III, parking prohibited at all times on certain streets	1	Rpld	12.88.030.62.,
					230., 327., 426

Ordinance Number	Approval Date	Description	Section	Section this Code
			2 Added	12.88.180.B.111
17069	2- 3-2009	An Ordinance approving and authorizing the execution of a credit agreement and an issuing and paying agency agreement with respect to the City of El Paso, Texas, Water and Sewer Commercial Paper Notes, Series A, amending the Ordinance authorizing the issuance of such notes; and resolve matter which are necessary to effectuate said matters		Omitted
17070	2-13-2009	An Ordinance amending Title 20, general provisions and definitions	1	20.02.304
17071	2-13-2009	An Ordinance annexing the following real property described as: Parcel1: a portion of Sections 47 and 48, Block 79, Texas and Pacific Railway Company Surveys		Omitted
17072	2-13-2009	An Ordinance changing the zoning of various parcels of the City (see Ord. No. 170752)		Omitted
17073	2-24-2009	An Ordinance authorizing the issuance of "City of El Paso, Texas, Taxable General Obligation Pension Bonds, Series 2009;" and resolve matters which are necessary to effectuate said issuance, including a delegation of authority		Omitted
17074	2-24-2009	An Ordinance changing the zoning of a portion of tract 1A5, Section 45, Block 79, Township 2, Texas and Pacific Railroad Surveys, City of El Paso, El Paso County, Texas, from A-2 (Apartment) to C-1 (Commercial)		Omitted
17075	2-24-2009	An Ordinance repealing Title 17 (Housing), Chapter 17.16 (Inspections and Certificates) of the El Paso City Code	1 Rpld	Ch. 17.16

Ordinance Number	Approval Date	Description	Section	Section this Code
17076	2-24-2009	An Ordinance amending Ordinance 8064 (Classification and Compensation Plan) to amend the Classification and Compensation Plan in its entirety		Omitted
17077	3- 3-2009	An Ordinance vacating a twenty-foot wide alley located between Zaragoza Road and Depot Street within Block 45 of Ysleta Grant, City of El Paso, El Paso County, Texas		Omitted
17078	3- 3-2009	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.44 (Vehicles and Traffic), Section 12.44.160 A. (Parking in Alleys), of the El Paso City Code by applying the regulations of Section 12.44.160 A. to all alleys	1	12.44.160.A
17079	3-10-2009	An Ordinance granting Special Permit No. ZON08-00093 to allow government buildings and uses for construction of a new transit terminal for Sun Metro on the property described as Parcel 1: Lots 10 to 15 and portions of Lots 16 to 17, Block 20, Harris Tract, an addition to the City of El Paso, El Paso County, Texas; Parcel 2: Tracts 20D and 20A, Block 45, Ysleta Grant, City of El Paso, El Paso County, Texas; and Parcel 3: Tracts 20B and 20A1, Block 45, Ysleta Grant, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.260 of the El Paso City Code		Omitted
17080	3-10-2009	An Ordinance amending Title 2, (Administration and Personnel) Chapter 2.80 requiring that meetings of the Capital Improvements Advisory Committee be video streamed or cablecast and that certain disclosures be made concerning financial interests	1	2.80.D
17081	3-10-2009	An Ordinance approving the Final Project Plan and Final Reinvestment Zone Financing Plan for Tax Increment Reinvestment Zone Number Five, City of El Paso, Texas.		Omitted
17082	3-10-2009	An Ordinance amending Ordinance No. 8961, an Ordinance creating a City Accessibility Advisory Committee, to revise the criteria for membership and the definition of a quorum; and repealing Ordinance Nos. 11194 and 11525, relating to the name and number of members of the committee		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17079	3-10-2009	An Ordinance granting Special Permit No. ZON08-00093 to allow government buildings and uses for construction of a new transit terminal for Sun Metro on the property described as Parcel 1: Lots 10 to 15 and portions of Lots 16 to 17, Block 20, Harris Tract, an addition to the City of El Paso, El Paso County, Texas; Parcel 2: Tracts 20D and 20A, Block 45, Ysleta Grant, City of El Paso, El Paso County, Texas; and Parcel 3: Tracts 20B and 20A1, Block 45, Ysleta Grant, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.260 of the El Paso City Code		Omitted
17080	3-10-2009	An Ordinance amending Title 2, (Administration and Personnel) Chapter 2.80 requiring that meetings of the Capital Improvements Advisory Committee be video streamed or cablecast and that certain disclosures be made concerning financial interests	1	2.80.D
17081	3-10-2009	An Ordinance approving the Final Project Plan and Final Reinvestment Zone Financing Plan for Tax Increment Reinvestment Zone Number Five, City of El Paso, Texas		Omitted
17082	3-10-2009	An Ordinance amending Ordinance No. 8961, an Ordinance creating a City Accessibility Advisory Committee, to revise the criteria for membership and the definition of a quorum; and repealing Ordinance Nos. 11194 and 11525, relating to the name and number of members of the committee		Omitted
17083	3-17-2009	An Ordinance amending Title 13 (Streets, Sidewalks, and Public Places), Chapter 13.24 (City Parks and Recreation Areas, Park and Recreation Fee Authorization, Facility Rental Fees), of the El Paso City Code to allow certain types of room rentals at no cost for recognized Neighborhood Associations	1	13.24.200.A.2
			2	13.24.200.A.2.a
17084	3-24-2009	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.030 (Schedule III — Parking Prohibited at all Times on Certain Streets) of the El Paso City Code to prohibit parking on Trawood Drive between Ben Hogan Drive and Estrada Drive	1 Added	12.88.030.443
17085	3-24-2009	An Ordinance granting special permit No. ZON08-00103 to allow for infill development on Lots 24 and 25, Block 41, amended map of Morningside Heights Addition		Omitted
17086	3-24-2009	An Ordinance granting special permit No. ZON08-00104 to allow for infill development on Lots 30 and 31, Block 115, amended map of Morningside Heights Addition		Omitted
17087	3-24-2009	An Ordinance granting special permit No. ZON08-00105 to allow for infill development on Lots 9 and 10, Block 69, amended map of Morningside Heights Addition		Omitted
17088	3-24-2009	An Ordinance granting special permit NO. ZON08-00114 to allow for infill development on Lots 22 and the east 1/2 of Lot 23, Block 69, amended map of Morningside Heights Addition		Omitted
17089	3-24-2009	An Ordinance granting special permit No. ZON08-00115 to allow for infill development on Lots 11, 12, and 13, Block 69, amended map of Morningside Heights Addition		Omitted
17090	3-24-2009	An Ordinance changing the zoning of Tracts 4, 4A, 5A, and 5A1, S.A. & M.G.R.R. Survey No. 265, from C-1 (Commercial) to C-2 (Commercial) and imposing a condition		Omitted
17091	3-24-2009	An Ordinance releasing conditions placed on property by Ordinance No. 15897 which vacated a portion of a 20-foot wide alley abutting Lots 3 & 4, Block 1, Mills Map		Omitted
17092	3-24-2009	An Ordinance vacating to public vehicular traffic a portion of a sixteen-foot wide alley, 0.096 acres of land, being all of the alley in Block 224, Alexander Addition		Omitted
17093	3-31-2009	An Ordinance changing the zoning of Tracts 12B and a portion of Tract 12A, Block 35, Ysleta Grant, from R-F (Ranch and Farm) to A-2 (Apartment)		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17094	3-31-2009	An Ordinance changing the zoning of a portion of Tract 7A, H.A. Chadwick Survey No. 253, and a portion of Tract 2A, Pedro Perez Survey 157, and a portion of tract 4A, A.L, Walton Survey No. 140, from R-4 (Residential) to M-2 (Heavy Manufacturing)		Omitted
17095	3-31-2009	An Ordinance changing the zoning of Lot 14, Ranchland Commercial District Unit Two, from C-1 (Commercial) to C-3 (Commercial)		Omitted
17096	3-31-2009	An Ordinance authorizing the City of El Paso to sell approximately 1,448.9250 acres and three identified access easements, being a portion of Sections 3, 4, 9, 15, 16, 17, 18, 23 & 24, Block 81, Township 1, Texas & Pacific Railway Company Surveys, and approximately 210.0026 acres being a portion of Tract 1A, S.J. Larkin Survey No. 269 and Tract 1, S.J. Larkin Survey No. 268, acting by and through the Texas Parks & Wildlife Department, for inclusion in the Franklin Mountains State Park		Omitted
17097	3-31-2009	An Ordinance amending Title 13 (Streets, Sidewalks, and Public Places), Chapter 13.24 (City Parks and Recreation Areas), of the El Paso City Code to revise provisions relating to rentals and other uses of Parks and Recreation facilities by government officials and members of the public	1	13.24.200
			2 Rpld	13.24.040.F
17098	3-31-2009	An Ordinance authorizing the City Manager to execute a quitclaim (tax resale) deed conveying all right, title, and interest in real property located at 2731 Portland Avenue to the El Paso Preservation Alliance in accordance with section 34.05(i) of the Tax Code		Omitted
17099	3-31-2009	An Ordinance authorizing the City Manager to execute a quitclaim (tax resale) deed conveying all right, title, and interest in real property located at 1123—1125 Missouri Avenue to Hector Duran in accordance with section 34.05(h) of the Tax Code		Omitted
17100	4- 7-2009	An Ordinance changing the zoning of Tract 6A2, Block 1, Upper Valley Surveys, Texas, from A-O (Apartment/Office) to C-1 (Commercial)		Omitted
17101	4- 7-2009	An Ordinance changing the zoning of Lot 4, Block 11, Beaumont Addition, from R-4 (Residential) to C-1 (Commercial)		Omitted
17102	4- 7-2009	An Ordinance amending the final Project Plan and final Reinvestment Zone Financing Plan for Tax Increment Reinvestment Zone Number Five, adopting said amendments as required by Section 311.011(E) Texas Tax Code; also providing a severability clause		Omitted
17103	4- 7-2009	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.030 (Schedule III — Parking Prohibited at all Times on Certain Streets), Kerbey Avenue from Oregon Street to the alley east thereof, north side only, and from Oregon Street to a point 40 feet east thereof, south side only and from Mesa Street to a point 17 feet west thereof, south side only	1 Added	12.88.030.444
17104	4- 7-2009	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.32 (Pedestrians), Section 12.32.070 (Crosswalk on Piedras Street at Grant Avenue)	1 Rpld	12.32.070
17105	4- 7-2009	An Ordinance granting a renewal of the franchise for Dominion Ambulance, LLC to operate a non-emergency ambulance transfer service		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17106	4-14-2009	An Ordinance authorizing the issuance of "City of El Paso, Texas, Combination Tax and Revenue Certificates of Obligation, Series 2009A" and resolve matters which are necessary to effectuate said issuance, including a delegation of authority		Omitted
17107	4-14-2009	An Ordinance authorizing the issuance of "City of El Paso, Texas, General Obligation Refunding Bonds, Series 2009;" and resolve matters which are necessary to effectuate said issuance, including a delegation of authority		Omitted
17108	4-14-2009	An Ordinance vacating a drainage easement varying in width from 45.41 feet to 48.71 feet, located within a portion of Lot 1, Block 1, Acacia Commercial Park, City of El Paso, El Paso County, Texas. Subject property: north of Mesa Hills and east of Mesa Street. Property owner: River Oaks Properties		Omitted
17109	4-14-2009	An Ordinance vacating a portion of Boston Avenue, located between Mesa Street and Oregon Street, in the Alexander Addition. Subject property: east of Oregon Street and west of Mesa Street. Property owner: City of El Paso		Omitted
17110	4-14-2009	An Ordinance granting a Special Privilege to Ascension Lutheran Church permitting the encroachment of a single directional sign onto a portion of public right-of-way at Ojo De Agua Drive		Omitted
17111	4-21-2009	An Ordinance changing the zoning of Lot 1, Block 1, City View Subdivision, City of El Paso, El Paso County, Texas, from C-3/SC (Commercial/Special Contract), C-1 (Commercial), and A-O (Apartment/Office) to GMU (General Mixed Use)		Omitted
17112	4-21-2009	An Ordinance amending Title 2 (Administration and Personnel), Chapter 2.92 (Ethics); to amend Sections 2.92.010 through 2.92.090 and Section 2.92.150; to add new definitions and standards of conduct, revise the duties and procedures of the Ethics Review Commission, revise the process for receiving and reporting gifts, create restrictions for officers and employees leaving City service, revise the complaint process, and create additional violations	1—8	2.92.010—2.92.080
			9 Added	2.92.090
			10	2.92.150
17113	5-12-2009	An Ordinance adopting impact fees for water and wastewater facilities, establishing impact fee service areas, providing for assessment and collection of impact fees; providing for accounts for impact fees and use of funds in these accounts; providing for appeals; and providing for other provisions required under state law; including procedural provisions; and amending Title 15 (Public Services) of the El Paso City Code to add a chapter on impact fees which shall codify this Ordinance	3 Added	Chapter 5.22, §§ 15.22.010—15.22.190
				App. A. App. B
17114	5-19-2009	An Ordinance authorizing the City of El Paso to sell a portion of Lot 21 and a portion of Lot 22, Block 13, Sahara Subdivision, El Paso, El Paso County, Texas, to Mountain Vista Builders, Inc		Omitted
17115	5-26-2009	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.180 (No Stopping or Standing — Tow-Away Zone), of the El Paso City Code by suspending the no stopping or standing - tow-away zone for that portion of 111 Oregon Street between Kerbey Avenue and Robinson Avenue, both sides, until October 31, 2010. The penalty being as provided in Section 12.84.010 (Violation - Penalty) of the El Paso City Code	1	12.88.180.111

Ordinance Number	Approval Date	Description	Section	Section this Code
17116	5-26-2009	An Ordinance of the City Council of the City of El Paso, Texas, ordaining the City's participation in the Texas Enterprise Zone Program pursuant to the Texas Enterprise Zone Act, Chapter 2303, Texas Government Code; Reaffirming Designation of a Liaison for Communication with interested parties; providing available tax incentives; and nominating the Toro Company located at 9455 Railroad Drive and 1440 Don Haskins Drive, El Paso, Texas, to the Office of the Governor Economic Development and Tourism through the Economic Development Bank as Enterprise projects at both locations		Omitted
17117	5-26-2009	An Ordinance defining specifications for the yearly city audit as prescribed by Article VII, "Public Finance", Section 7.21, "Independent Audit", of the City Charter and repealing Ordinance No. 014486		Omitted
17118	6- 2-2009	An Ordinance changing the zoning of Lots 9 and 10, Block 63, East El Paso Addition, City of El Paso, El Paso County, Texas, from R-5 (Residential) to C-1 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code		Omitted
17119	6- 2-2009	An Ordinance granting special permit no. ZON09-00010 to satisfy parking requirements by allowing off-site, off-street parking on Parcel 2 described as Block 270 and Block 277, the alley, and the closed portion of St. Vrain Street, Campbell Addition, and Block 277, Pierce Findley Addition, City of El Paso, El Paso County, Texas, more commonly known as 805 Montana Avenue, to serve Parcel 1, described as Lots 1 through 7, Block 260, Campbell Addition, City of El Paso, El Paso County, Texas, more commonly known as 815 and 823 East Yandell Drive, pursuant to Section 20.10.410 of the El Paso City Code. The penalty is as provided in Chapter 20.24 of the El Paso City Code		Omitted
17120	6- 2-2009	An Ordinance amending Ordinance No. 014543 which changed the zoning and imposed conditions on Tract 6, S.A. & M.G. Railroad Company Survey 266, City of El Paso, El Paso County, Texas, and repealing Ordinance No. 16684 which amended and released certain conditions placed on a portion of Tract 6, and Edgar Road right-of-way, S.A. & M.G. Railroad Company Survey 266, City of El Paso, El Paso County, Texas, by Ordinance 014543. The penalty is as provided for in Chapter 20.24 of the El Paso City Code		Omitted
17121	6- 9-2009	An Ordinance changing the zoning of Lots 25 through 28, Block 22, Second Addition to Womble Addition, City of El Paso, El Paso County, Texas, from R-5 (Residential) to A-O (Apartment/Office). The penalty is as provided for in Chapter 20.24 of the El Paso City Code		Omitted
17122	6- 9-2009	An Ordinance changing the zoning of Tracts 1D-2C, 1D-2A1, Block 35, Ysleta Grant, City of El Paso, El Paso County, Texas, from C-1 (Commercial) to C-3 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code		Omitted
17123	6- 9-2009	An Ordinance amending Title 2 (Administration and Personnel) by adding Chapter 2.22 (Open Space Advisory Board) to create the Open Space Advisory Board to assist in the preservation and acquisition of open space	1 Added	Ch. 2.22
			2—6 Added	2.22.010—2.22.050
17124	6- 9-2009	An Ordinance amending Title 2 (Administration and Personnel), Chapter 2.20 (Board of Parks and Recreation) in its entirety	1	2.20.010—2.20.060

Ordinance Number	Approval Date	Description	Section	Section this Code
17125	6-16-2009	An Ordinance amending Ordinance Numbers 010873, 012221, 012476, 012636, 014826, 015415, 015961, and 016456 which established operating procedures and set fees for Foreign-Trade Zone No. 68, to add a designation for Distribution Site Operator; to add User Fees; to provide for the removal of FTZ Designation; and to implement a Small Manufacturing Business Accelerator Project at Foreign - Trade Zone No. 68		Omitted
17126	6-16-2009	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.150 (Schedule XIV, Speed Limits), of the El Paso City Code by adding Mesquite Hill Drive and Tierra Dorada Drive to Subsection F (Thirty-Five Miles per Hour). The penalty being as provided in Section 12.84.010 (Violation - Penalty) of the El Paso City Code	1 Added	12.88.150.F.92, 93
17127	6-23-2009	An Ordinance changing the zoning of a portion of Section 47, Block 79, Township 2, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas, from R-5 (Residential) to A-2 (Apartment). The penalty is as provided for in Chapter 20.24 of the El Paso City Code		Omitted
17128	6-23-2009	An Ordinance changing the zoning of the following real property described as: Parcel 1: a portion of Sections 20 and 29 Block 80, Township 1, Texas and Pacific Railroad Surveys City of El Paso, El Paso County, Texas, from R-3A (Residential) to C-2 (Commercial) and imposing a condition; Parcel 2: a portion of Section 21, Block 80, Township 1, Texas and Pacific Railroad Surveys, City of El Paso, El Paso County, Texas, from R-3A/C (Residential/Conditions) to C-2 (Commercial) and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code		Omitted
17129	6-23-2009	An Ordinance releasing a condition placed on property by Ordinance No. 016732 which changed the zoning of a portion of Section 21, Block 80, Township 1, Texas and Pacific Railroad Surveys, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code		Omitted
17130	6-23-2009	An Ordinance granting a Special Privilege to the Catholic Diocese of El Paso - Saint Thomas Aquinas Church permitting the encroachment of a single directional sign onto a portion of public right-of-way at Lee Trevino Drive and a single directional sign onto a portion of public right-of-way at Pebble Hills Boulevard		Omitted
17131	6-23-2009	An Ordinance authorizing the City of El Paso to enter into a Lease Agreement with El Paso Independent School District for the purpose of developing, constructing, and utilizing youth baseball and softball fields on property located adjacent to Brown Street and Schuster Avenue consisting of all of Blocks 104, 105, and 136, Alexander Addition, and a portion of Blocks 103, 106, 107, 135, 137, 138, 139, 142, 143, and 174, and a portion of Ange Street, Octavia Street, Price Street, Noble Street, Daggett Street, Wade Street, University Avenue, Blanchard Avenue and Blacker Avenue, Rights-Of-Way (Vacated), Alexander Addition, El Paso, El Paso County, Texas		Omitted
17132	7- 7-2009	An Ordinance changing the zoning of Lots 1 through 4, Block 1, Ponce Estates, City of El Paso, El Paso County, Texas, from R-3/SC (Residential/Special Contract) to R-5/SC (Residential/Special Contract). The penalty is as provided for in Chapter 20.24 of the El Paso City Code		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17133	7- 7-2009	An Ordinance changing the zoning of a portion of Tract 8A, Boothville Subdivision, City of El Paso, El Paso County, Texas, from R-F (Ranch and Farm) to R-3 (Residential). The penalty is as provided for in Chapter 20.24 of the El Paso City Code		Omitted
17134	7- 7-2009	An Ordinance changing the zoning of a portion of Tract 7D, First Supplemental Map of Parkland Addition, City of El Paso, El Paso County, Texas, from R-4 (Residential) to A-1 (Apartment) and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code		Omitted
17135	7- 7-2009	An Ordinance vacating a portion of a 20' wide alley, Block 1, Mills Map, City of El Paso, El Paso County, Texas. Location: east of El Paso Street and north of Main Street		Omitted
17136	7- 7-2009	An Ordinance authorizing the City of El Paso to sell the east 11.91 feet of the west 48.60 of Lots 19 and 20, Block 106, Campbell Addition, City of El Paso, El Paso County, Texas, to Centro De Salud Familiar La Fe, Inc		Omitted
17137	7- 7-2009	An Ordinance authorizing the City of El Paso to sell Lots 1 and 2, Block 54, Grandview Addition, City of El Paso, El Paso County, Texas, to Kyriacos Louloupides		Omitted
17138	7-14-2009	An Ordinance granting Special Permit No. ZON09-00020 to allow ballrooms on the property described as Lots 1 and 2, Block 1, John T. Hellard Subdivision, City of El Paso, El Paso County, Texas, pursuant to Section 20.08.030 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code		Omitted
17139	7-14-2009	An Ordinance changing the zoning of the following real property described as: Parcel 1: all of Tract 11, Block 49, Ysleta Grant, City of El Paso, El Paso County, Texas, be changed from R-F/H (Ranch and Farm/Historic) to S-D/H (Special Development/ Historic); and, Parcel 2: all of Tract 12-A-1, Block 49, Ysleta Grant, City of El Paso, El Paso County, Texas, be changed from R-F (Ranch and Farm) to S-D (Special Development). The penalty is as provided in Chapter 20.24 of the El Paso City Code		Omitted
17140	7-14-2009	An Ordinance vacating a portion of Depot Street, Block 45, Ysleta Grant, City of El Paso, El Paso County, Texas. Location: west of Zaragoza Road and north of Alameda Avenue		Omitted
17141	7-14-2009	An Ordinance amending Title 12 (Vehicles and Traffic) to amend Chapter 12.08 (Administration and Enforcement), Section 12.08.220 (Impounding Vehicles), of the El Paso City Code by adding Subsection 12.08.220 A.21, authorizing a police officer to impound a motor vehicle stopped for a traffic law violation if the vehicle's owner or operator fails to show evidence of financial responsibility	1 Added	12.08.220.21
17142	7-14-2009	An Ordinance authorizing the City Manager to execute a deed without warranty conveying all right, title and interest in Lot 4, Block 1; Lot 1, Block 2, and Lot 3, Block 2, Las Quintas, El Paso County, Texas, to MJ Real Properties, Inc. in accordance with Section 253.008, Subsections (A) and (B) of the Texas Local Government Code		Omitted
17143	7-14-2009	An Ordinance authorizing the City Manager to sign a contract of sale and any other necessary documents between the City of El Paso and the County of El Paso which will allow for the City of El Paso to convey property commonly known as 211 and 325 Shelter Place, El Paso, El Paso County, Texas, including the improvements thereon, to the County of El Paso		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17144	7-14-2009	An Ordinance amending Title 20 (Zoning), Chapter 20.18 (Sign Regulations), of the El Paso City Code to amend Articles I, II, III, and V to establish revised regulations for signs, to add definitions; to add provisions to limit the conversion of billboards to electronic displays; to extend the sign regulation to the City's Extraterritorial Jurisdiction; to prohibit new billboard signs, to remove the exemptions for governmental entities, and to establish appeal procedures. The penalty is as provided in Section 20.24 of the El Paso City Code.		Voided
17145	7-14-2009	An Ordinance amending Title 20 (Zoning), Chapter 20.02 (General Provisions and Definitions), Article II (Definitions), of the El Paso City Code to revise all the definitions related to signs. The penalty is as provided in Section 20.24 of the El Paso City Code		Voided
17146	7-14-2009	An Ordinance amending Title 15 (Public Services), Chapter 15.08 (Street Rentals), Section 15.08.120 (Special Privilege Licenses), Subsection C (Exceptions), of the El Paso City Code to add an exception for certain signs on the City's parkway. The penalty being as provided in Chapter 1.08, General Penalty, of the El Paso City Code		Voided
17147	7-21-2009	An Ordinance vacating a portion of Main Street, City of El Paso, El Paso County, Texas. Location: west of Oregon Street at Main Street		Omitted
17148	7-21-2009	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.150 (Schedule XIV, Speed Limits) of the El Paso City Code by adding Westwind from Stardust Drive to Thunderbird Drive to Subsection E (Thirty Miles per Hour), and amending Subsection F (Thirty-Five Miles per Hour), Number 36 Westwind Drive, from Stardust Drive to Redd Road; the penalty being as provided in section 12.84.010 (Violation - Penalty) of the El Paso City Code	1 Added	12.88.150.E.4
			2	12.88.150.F.36
17149	7-21-2009	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.200 Schedule XII (Restrictions on Parking in Residential Districts), Zone R (No Parking 7:00 a.m. to 2:00 p.m., School Days Only) of the El Paso City Code to require no parking from 8:00 a.m. to 5:00 p.m., school days only; the penalty being as provided in Section 12.84.010 (Violation - Penalty) of the El Paso City Code	1	12.88.200(Zone R intro.)
17150	7-21-2009	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.030 (Schedule III — Parking Prohibited at All Times on Certain Streets) of the El Paso City Code to prohibit parking on Latta Street between Findley Avenue and Paisano East Drive, west side; the penalty being as provided in Section 12.84.010 (Violation - Penalty) of the El Paso City Code	1 Added	12.88.030.445
17151	7-21-2009	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.200 (Schedule XII - Restrictions on Parking in Residential Districts), Zone Q (No Parking 7:00 a.m. to 4:00 p.m., School Days Only) of the El Paso City Code by adding Bill Collins Drive, both sides; the penalty being as provided in Section 12.84.010 (Violation - Penalty) of the El Paso City Code	1	12.88.200(Zone Q)
17152	7-28-2009	An Ordinance vacating a 0.160 acre portion of a 30-foot alley within Block 51, Anson Mills Map, El Paso, El Paso County, Texas		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17153	7-28-2009	An Ordinance vacating a 0.212 acre portion of Western Street lying between Block 170, Campbell's Addition and Block 51, Anson Mills Map, El Paso, El Paso County, Texas		Omitted
17154	7-28-2009	An Ordinance amending Title 15 (Public Services), Chapter 15.08. (Street Rentals), Section 15.08.120 (Special Privilege Licenses), Subsection C (Exceptions), of the El Paso City Code to provide an exception for the use of public right-of-way for outdoor patio cafes in the Union Plaza Entertainment Area and to provide for a separate approval process. The penalty is as provided in Chapter 1.08, General Penalty, of the El Paso City Code	1 Added	15.08.120.C.13
17155	8- 4-2009	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.030 (Schedule III — Parking Prohibited at all Times on Certain Streets) of the El Paso City Code deleting the prohibition of parking on Coldwell Street from San Francisco Avenue to Paisano Drive on either side; the penalty being as provided in Section 12.84.010 (Violation - Penalty) of the El Paso City Code	1	12.88.030
17156	8- 4-2009	An Ordinance amending Title 12 (Vehicles and Traffic) of the El Paso City Code by adding Chapter 12.42 (Restrictions for Trucks Upon a Portion of Interstate Highway 10), restricting trucks with three or more axels to the lanes on the right of the left most lane on Interstate Highway 10 from 0.2 miles east of State Highway 20 (Mesa Street) to 0.7 miles west of Farm-to-Market Highway 659 (Zaragoza Road) for eastbound vehicles and 0.3 miles west of Farm-to-Market Highway 659 (Zaragoza Road) to 0.2 miles east of State Highway 20 (Mesa) Street for westbound vehicles, provided the restricted vehicle may use any lane of the highway to pass another vehicle and to enter and exit the highway; the penalty as provided in Chapter 12.84 of the El Paso City Code	1 Added	12.42.010—12.42.030
17157	8-11-2009	An Ordinance amending Title 5 (Business, Taxes, Licenses, and Regulations), Chapter 5.96 (Tattooing and Body Piercing Licenses), to correct titles and references; Section 5.96.050 (Application Processing), to clarify the application process: and Section 5.96.090 (Fees); the penalty as is provided in Section 5.96.110 of the El Paso City Code	1	5.96.010
				5.96.030—5.96.050
				5.96.070, 5.96.080
				5.96.100
			2	5.96.020—5.96.040
				5.96.070
				5.96.090
			3 Rpld	5.96.020 F.
			Rnbd	5.96.020 G.—M.
			as	5.96.020 F.—L.
			4	5.96.050 A.
			5	5.96.070 B.9.
			6	5.96.090
17158	8-11-2009	An Ordinance amending Title 5 (Business, Taxes, Licenses, and Regulations), Chapter 5.48 (Laundries), to correct references to Public Laundry; amending Section 5.48.010 (Public Laundry/Defined); addressing a re-inspection fee in Section 5.48.020 (License — Required — Application — Investigation — Issuance) and Section 5.48.030 (License — Fee — Expiration): and Section 5.48.050 (License — Denial — Suspension — Revocation) by specifying the time for a final ruling on an appeal; the penalty as is provided in Section 5.32.160 of the El Paso City Code	1	5.48.020
				5.48.040—5.48.170
			2	5.48.010

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			3	5.48.020
			4	5.48.030
			5	5.48.050 C.
			6	5.48.180 A.
			7	5.48.190
			8 Added	5.48.200
			9 Added	5.48.210
17159	8-11-2009	An Ordinance amending Title 17 (Housing), Chapter 17.12 (Trailer Courts), Section 17.12.030 (License — Procedure for Obtaining) by clarifying the process; Section 17.12.040 (License - Fee) by removing the fee amounts and the Section 17.12.050 (License - Renewal) by clarifying the authority for such fee; and clarifying authority and titles in Section 17.12.110, 17.12.120, and 17.12.130; the penalty as is provided in Section 17.12.150 of the El Paso City Code	1	17.12.030
			2	17.12.040
			3	17.12.050
			4	17.12.090 J.
			5	17.12.110 E.
				17.12.110 G.
			6	17.12.120 D.
			7	17.12.130 A., B.
				17.12.130 D.
			8 Added	17.12.135
			9	17.12.140
17160	8-11-2009	An Ordinance amending Title 9 (Health and Safety), Chapter 9.52 (Fire Prevention Code), Section 9.52.160 (Appendix A, Fee Schedule - Amended), of the El Paso City Code by authorizing and amending the fees for Fire Department Services	1	9.52.160
17161	8-11-2009	An Ordinance amending Title 7 (Animals), Chapter 7.08 (Animals Generally), Section 7.08.080 (Animal Regulation and Disease Control Department Services — Fees), of the El Paso City Code by adding Subsection F authorizing a fee for microchipping	1	7.08.080
17162	8-11-2009	An Ordinance amending Title 9 (Health and Safety), Chapter 9.12 (Food and Food Handling Establishments), in its entirety; the penalty as provided in 9.12.890	1	9.12.005—9.12.890
17163	8-11-2009	An Ordinance amending Title 9 (Health and Safety), Chapter 9.02 (Department of Public Health), of the El Paso City Code by adding Section 9.02.040 (Fees — Clinics and Laboratory) for Clinic and Laboratory services; and deleting Title 9 (Health and Safety), Chapter 9.84 (Miscellaneous Health Regulations), Section 9.84.050 (Venereal Disease Clinic — Fees)	1 Added	9.02.040
			2 Rpld	9.84.050
17164	8-11-2009	An Ordinance amending Title 2 (Administration and Personnel), Chapter 2.40 (Department of Museums and Cultural Affairs), of the City Code, Section 2.40.010 (Department Created - Functions), to include the presentation of museum and cultural events and activities as a departmental goal; and Section 2.40.020 (Fees), to clarify the procedures for setting the fees for membership, exhibitions, facility rental, and classes	1	2.40.010
			2	2.40.020
17165	8-11-2009	An Ordinance amending Ordinance No. 16324 to increase the number of members on the Public Art Committee, to amend payments to artists, and to reduce the number of PAC decisions that need to be reviewed by the Cultural Affairs Advisory Board.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17166	8-11-2009	An Ordinance amending Title 13 (Streets, Sidewalks, Public Places), Chapter 13.25 (El Paso Zoo), Section 13.25.010 (El Paso Zoo Fees); establishing authority for the Zoo Director to discount admission to Zoo designated promotional events and participation in Zoo education programs up to 50% aimed at increasing attendance, honoring groups of importance to the city, or otherwise creates good will in the community and for the purpose of providing opportunities for learning in fulfillment of the mission of the Zoo	1	13.25.010
17167	8-11-2009	An Ordinance relating to the composition of the El Paso Water Utilities Public Service Board and resolving matters incident and related thereto	1, 2 Added	2.34.010, 2.34.020
17168	8-18-2009	An Ordinance granting Special Permit No. ZON09-00025 to allow for a parking reduction on the property described as Lots 1 through 10, Block 9, Cotton Addition, city of El Paso, El Paso County, Texas, pursuant to Section 20.14.070 (Parking Reduction) of the El Paso City Code. The penalty is as provided for in Chapter 20.24 of the El Paso City Code		Omitted
17169	8-18-2009	An Ordinance changing the zoning of Lots 1 through 25, Block 25, Sandstone Ranch Unit Four, city of El Paso, El Paso County, Texas, from R-F (Ranch and Farm) to R-3A (Residential). The penalty is as provided for in Chapter 20.24 of the El Paso City Code		Omitted
17170	8-18-2009	An Ordinance changing the zoning of a portion of Lots 51, 52, and 53, Cinecue Park Subdivision, city of El Paso, El Paso County, Texas, from R-F (Ranch and Farm) to R-3 (Residential). The penalty is as provided for in Chapter 20.24 of the El Paso City Code		Omitted
17171	8-18-2009	An Ordinance amending Title 18 (Building and Construction), Chapter 18.18 (Outdoor Lighting Code), of the El Paso City Code by adding exemptions for downtown, entertainment districts, statutes, and sculptures displayed for public viewing, seasonal decorations, new definitions and requirements for interior high intensity discharge lights; clarifying shielding requirements, total outdoor light output standards and nonconformance; requiring a permit for use of laser source light and searchlights and limiting use; prohibiting adjustable light fixtures; allowing temporary exemptions and requiring a permit for temporary events and construction in certain circumstances; the penalty being as provided in Section 18.02.107 (Violations and Penalties) of the El Paso City Code	1	18.18.010
			2, 3	18.18.030, 18.18.040
			4, 5	18.18.060, 18.18.070
			6 Added	18.18.075
			7—9	18.18.080—18.18.100
			10 Added	18.18.135
			11—16	18.18.140—18.18.190
			17—26	18.18.220—18.18.310
			27 Added	18.18.335
			28	18.18.340
			29 Added	18.18.345
			30 Added	18.18.355
			31 Added	18.18.365
			32	18.18.370
			33	18.18.375
			34	18.18.380
			35	18.18.400
			36	18.18.420

Ordinance Number	Approval Date	Description	Section	Section this Code
17172	8-18-2009	An Ordinance amending Title 18 (Building and Construction), Chapter 18.02 (Building and Construction Administrative Code), of the El Paso City Code to provide for revised building permit fees, a non-business hours inspection fee, annual contractor registration requirements and registration fee, and a home improvement contractors registration fee; the penalty being as provided in Section 18.02.107 (Violations and Penalties) of the El Paso City Code	1 Added	18.02.108.6
			2 Added	18.02.109.1.1.5
			3	18.02.109.1.6
			4	18.02.109.2 C.
17173	8-18-2009	An Ordinance vacating to public vehicular traffic a portion of a twenty-foot alley located between Anthony Street and Durango Street, 0.119 acres of land, within Block 160, Campbell's Addition, City of El Paso, El Paso County, Texas		Omitted
17174	8-18-2009	An Ordinance granting a Special Privilege License to Plaza De Montana Partners, L.P. permitting the encroachment of three awnings and three signs over portions of public right-of-way located on a portion of Lot 1, Block 38, Mills Addition, City of El Paso, El Paso County, Texas, more commonly known as 116 South Stanton Street		Omitted
17175	8-18-2009	An Ordinance imposing a moratorium for a period of ninety days, unless otherwise extended, on the acceptance of applications for permits and issuance of permits for the erection, construction, or modification of off premise signs or billboards, including but not limited to, conversion to digital display		Omitted
17176	8-18-2009	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.78 (International Bridges), Section 12.78.010 (Tolls for International Bridges), of the El Paso City Code to incorporate standard language for fees and to create Section 12.78.030 to allow for up to seven no fee days for pedestrians annually; the penalty as provided for in 12.84.010 of the City Code	1	12.78.010
			2	12.78.030
17177	8-25-2009	An Ordinance extending the term of a Special Privilege License granted to Shell Oil Company by Ordinance 12055, which permitted the encroachment onto a portion of a drainage easement located in Tract 1A5, Block 4, Ascarate Grant, City of El Paso, El Paso County, Texas, with a multi-product pipeline and approving the assignment of the license to Magellan Pipeline Company L.P		Omitted
17178	8-25-2009	An Ordinance amending Ordinance No. 016874 granting a Special Privilege to ONIHC, L.L.C. permitting the encroachment onto public right-of-way with a sidewalk cafe located at 504 West San Antonio Avenue by adding the sale and service of alcoholic beverages as a permissible activity in the public right-of-way described in Ordinance 016874 and extending the term of the Special Privilege License to ten years		Omitted
17179	8-25-2009	An Ordinance amending Ordinance 8064 (Classification and Compensation Plan) to amend Section 3.4 (f), Demotion or Reassignment to Lower Grade and 4.6, Legal Holidays		Omitted
17180	8-25-2009	An Ordinance amending Ordinance 8065, Civil Service Rules and Regulations, amending various rules and regulations contained therein, as applicable to the Civil Service System of the City of El Paso and City Employees		Omitted
17181	8-25-2009	An Ordinance amending Title 15 (Public Services), Chapter 15.08 (Street Rentals), Section 15.08.120 (Special Privileges), of the El Paso City Code to amend the procedures for use of public right of way granted by special privilege license and permits, the penalty as provided for in Section 15.08.125 of the El Paso City Code	1	15.08.120

Ordinance Number	Approval Date	Description	Section	Section this Code
17182	8-25-2009	An Ordinance amending Title 13 (Streets, Sidewalks and Public Places), Chapter 13.24 (City Parks and Recreation Areas), Section 13.24.200, Park and Recreation facility use and fee authorization, of the El Paso City Code to revise and clarify the provisions relating to the types of user fees authorized to be charged by the department, to clarify the authorization for the development of programming in the parks; to require background checks for league coaches, and to amend the definitions used herein and on the fee schedule	1	13.24.200
17183	8-25-2009	An Ordinance levying FY 2010 taxes.		Omitted
17184	9- 1-2009	An Ordinance amending Ordinance 16013 to extend the term of Ordinance 16013 which granted a Special Privilege to Mario Hernandez, Hector Cobos, Jr., Eber Martinez, Maria Cobos, Margarita Cobos, Juan Torres, Pedro Orona, Hector Cobos, Maria Prieto, Maria Grado, Jack Kellog, Jesus Hernandez, Eusebio Coronel, Victor Ochoa, Carmen Cox, Maria Chavez, Eunise Morales, Maria Barraza, Santiago Aguilar, and Brandon Palma to encroach onto a portion of various public rights-of-way with a food-vending concession in the Downtown area		Omitted
17185	9- 1-2009	An Ordinance amending Title 20 (Zoning), Chapter 20.18 (Sign Regulations), Section 20.18.020 (Applicability); Section 20.18.030 (Purpose); Section 20.18.100 (Permit Required); Section 20.18.130 (Removal of Signs); Section 20.18.140 (Prohibited Signs); Section 20.18.400 (General); Section 20.18.410 (A) (Home Occupation Signs); Section 20.18.480 (Historic Overlay Zones, Historic Districts and Designated Significant Landmarks); Section 20.18.490 (Additional On-Premise Signs); Section 20.18.510 (Non-Commercial Signs) of the El Paso City Code to extend the sign regulation to the City's extraterritorial jurisdiction; to amend permitting requirements; to add definitions; and to address non-commercial signs. The penalty is as provided in Section 20.24 of the El Paso City Code	1	20.18.020 A.
			2	20.18.030 E.
			3 Added	20.18.035
			4 Added	20.18.050
			5	20.18.100
			6	20.18.130 D.
			7 Added	20.18.140 H.8.
			8	20.18.400 A.9.j.
				20.18.400 A.11.
			9	20.18.410 A.6.
			10	20.18.480 A.7.
			11	20.18.490 G.5.
			12	20.18.510
17186	9- 1-2009	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.010 Schedule I (One Way Streets), of the El Paso City Code by deleting Number 8, Anthony Street between San Antonio Avenue and Paisano Drive; the penalty being as provided in Section 12.84.010 (Violation - Penalty) of the El Paso City Code	1	12.88.010

Ordinance Number	Approval Date	Description	Section	Section this Code
17187	9- 1-2009	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.010 Schedule I (One-Way Streets), of the El Paso City Code by changing Number 35, Franklin Avenue eastbound from Durango Street to Campbell Street to Franklin Avenue eastbound from Oregon Street to Campbell Street; the penalty being as provided in Section 12.84.010 (Violation - Penalty) of the El Paso City Code	1	12.88.010
17188	9- 8-2009	An Ordinance authorizing the issuance of "City of El Paso, Texas Municipal Drainage Utility System Revenue Bonds, Taxable Series 2009 (Direct Subsidy-Build America Bonds)" and resolve matters which are necessary to effectuate said issuance, including a delegation of authority		Omitted
17189	9- 8-2009	An Ordinance making Chapter 2.92 of the El Paso City Code applicable to the members of the El Paso Water Utilities Public Service Board and resolving matters incident and related thereto; the penalty being as provided in Section 2.92.150 of The El Paso City Code	1, 2 Added	2.34.030
17190	9- 8-2009	An Ordinance amending Title 18 (Building and Construction), Chapter 18.08 (Building Code), Section 18.08.170 (Accessibility for People with Physical Disabilities), of the El Paso City Code by deleting the prior adoption of Sections 5 through 13 of the Texas Accessibility Standards; deleting the City Of El Paso amendments to the Texas Accessibility Standards, Sections 4.1.3 (5) through 13.4.1; adopting and amending the 2003 International Building Code, Chapter 11, Section 1101; deleting the City Of El Paso amendments to the International Building Code, Chapter 11, Sections 1102 through 1114; the penalty being as provided in Section 18.02.107 (Violations and Penalties) of the El Paso City Code	1	18.08.170
17191	9- 8-2009	An Ordinance amending Title 20 (Zoning), Chapter 20.16 (Screening and Fencing), Section 20.16.030 (Permitted Walls), of the El Paso City Code to allow for an additional four feet of fencing on a screening wall or fence not to exceed a total of twelve feet in height. The penalty is as provided for in Chapter 20.24 of the El Paso City Code	1	20.16.030
17192	9- 8-2009	An Ordinance changing the zoning of a portion of Tract 3F, Section 21, Block 80, Township 1, Texas and Pacific Railroad Company Surveys, City of El Paso, El Paso County, Texas, from C-4/C (Commercial/Conditions) to R-5 (Residential) and releasing conditions placed on the property by Ordinance No. 016745. The penalty is as provided for in Chapter 20.24 of the El Paso City Code		Omitted
17193	9- 8-2009	An Ordinance changing the zoning of a portion of Section 47, Block 79, Township 2, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas, from C-1/C (Commercial/Conditions) to G-MU/C (General Mixed Use/Conditions). The penalty is as provided for in Chapter 20.24 of the El Paso City Code		Omitted
17194	9- 8-2009	An Ordinance releasing conditions placed on property by Ordinance No. 17072 which changed the zoning of a portion of Section 47, Block 79, Township 2, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code		Omitted
17195	9-15-2009	An Ordinance repealing Ordinance 8397 which established procedures for annexation and amending Title 20 (Zoning), Chapter 20.06 (Zoning Districts and Maps), of the El Paso City Code to establish annexation procedures	1 Added	20.06.075

Ordinance Number	Approval Date	Description	Section	Section this Code
17196	9-22-2009	An Ordinance annexing Tract 71, Section 3, Block 79, Township 3, Texas and Pacific Railway Company Surveys, El Paso County, Texas		Omitted
17197	9-22-2009	An Ordinance changing the zoning of Tract 71, Section 3, Block 79, Township 3, Texas and Pacific Railways Company Surveys, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) to R-5 (Residential). The penalty is as provided for in Chapter 20.24 of the El Paso City Code		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17198	9-22-2009	An Ordinance granting Special Permit No. ZON08-00060 to allow for a planned residential development with reduced setbacks and reduced lot width on Tract 71, Section 3, Block 79, Township 3, Texas and Pacific Railways Company Surveys, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.270 (Zoning) of the El Paso City Code. The penalty is as provided for in Chapter 20.24 of the El Paso City Code		Omitted
17199	9-22-2009	An Ordinance granting Special Permit No. ZON09-00044 to allow for Infill Development on all of Lot 1, Block 1, Falvey Estates, City of El Paso, El Paso County, Texas, pursuant to Sections 20.04.260 and 20.10.280 of the El Paso City Code. The penalty is as provided for in Chapter 20.24 of the El Paso City Code		Omitted
17200	9-22-2009	An Ordinance authorizing the City of El Paso to sell approximately 0.662 acres of land being a portion of Tract 8A, Block 13, Ysleta Grant, City of El Paso, El Paso County, Texas, to the Catholic Diocese of El Paso/Most Reverend Armando X. Ochoa or his successor in office		Omitted
17201	9-22-2009	An Ordinance deleting Chapter 2.28 (El Paso International Airport Board) of the El Paso City Code for the purpose of abolishing the El Paso International Airport Board and repealing Ordinances Nos. 5610 and 6626 which had established the board	1 Rpld	2.28.010—2.28.090
17202	9-22-2009	An Ordinance repealing Ordinance No. 15539 for the purpose of abolishing the Information Technology Advisory Board		Omitted
17203	9-22-2009	An Ordinance to abolish the Public Utility Regulation Board by repealing Ordinances Nos. 5994, 6801, 6912, 8799, and 11497		Omitted
17204	9-22-2009	An Ordinance to abolish the City Tree Board and to assign additional duties to the Board of Parks and Recreation that are pertinent to tree advocacy in the City of El Paso by deleting Chapter 2.77 (El Paso Tree Board) of the El Paso City Code; by amending Chapter 2.20 (Board of Parks and Recreation), Section 2.20.050 (Board Duties) of the El Paso City Code to reassign the duties of the Tree Board to the Board of Parks and Recreation; and by amending Chapter 9.11 (Tree Care), Section 9.11.010 E (General Provisions), and Chapter 18 (Landscape), Section 18.46.050 (Definitions), of the El Paso City Code to amend the references to the Tree Ordinance and Tree Board as contained herein	1 Rpld	2.77.010—2.77.060
			2	2.20.050
			3	9.11.010 E.
			4	18.46.050
17205	9-22-2009	An Ordinance to abolish the El Paso Mountain Committee and to assign the duties held by the Committee to the Open Space Advisory Board, by repealing Ordinance No. 14790 (Establishing the El Paso Mountain Committee) and amending Title 2 (Administration and Personnel), Chapter 2.22 (Open Space Advisory Board), Section 2.22.050 (Board Duties), of the El Paso City Code	1	Omitted
			2	2.22.050
17206	9-22-2009	An Ordinance amending Section 2.04.040 (Holding Over Prohibited) of the El Paso City Code to delete the reference to the Public Utility Regulation Board contained therein and to exempt the members of the Photographic Traffic Signal Enforcement System Advisory Board from the application of this section	1	2.04.040
17207	9-22-2009	An Ordinance repealing Ordinances Nos. 11598, 11902, 15748, 16971, and 17008 for the purpose of abolishing the El Paso International Bridge Commission		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17208	9-22-2009	An Ordinance amending Ordinance No. 8262 establishing the standing Committee on Border Relations in its entirety to include additional duties as previously held by the International Bridge Commission and repealing Ordinances Nos. 9504 and 11188, which had previously amended Ordinance No. 8262	I—V	2.72.010—2.72.050
17209	9-29-2009	An Ordinance granting Special Permit No. ZON09-00033 to allow for a 100% parking reduction on the property described as Lots 1-6, Block 86, Campbell Addition, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.260 of the El Paso City Code. The penalty is as provided for in Chapter 20.24.260 of the El Paso City Code		Omitted
17210	9-29-2009	An Ordinance granting a Special Privilege License to Plum City Lounge, LLC. permitting the encroachment of 16 canopies, 2 stairways, an entryway, a handicap accessibility ramp, a wall sign, and an outdoor patio cafe with required fencing, located within a portion of public right-of-way located at 500 San Francisco Street and allowing the sale and service of alcoholic beverages as a permissible activity within the outdoor patio cafe area		Omitted
17211	10 6-2009	An Ordinance amending the 2025 Proposed Thoroughfare System as detailed in the Map Atlas of The Plan for El Paso and its related documents as originally approved by the El Paso City Council in 1999, and as subsequently amended, by adding the extension of Redd Road as a collector arterial with bike lanes, across the Rio Grande to connect with Gomez Road		Omitted
17212	10-13-2009	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.150 (Schedule XIV, Speed Limits), of the El Paso City Code by adding John Hayes Street and Tierra Este Road from Zaragoza Road south to the city limits to Subsection H (Forty-Five Miles per Hour); the penalty being as provided in Section 12.84.010 (Violation - Penalty) of the El Paso City Code	1 Added	12.88.150 H.36., 37.
17213	10-13-2009	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.150 (Schedule XIV, Speed Limits), of the El Paso City Code by adding Paseo Del Este Drive from Joe Battle Boulevard east to its terminus to Subsection H (Forty-Five Miles per Hour); the penalty being as provided in Section 12.84.010 (Violation - Penalty) of the El Paso City Code	1 Added	12.88.150 H.38.
17214	10-13-2009	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.010 Schedule I (One Way Streets), of the El Paso City Code by deleting the following streets: Number 3, Florence Street, south between Texas Avenue and San Antonio Avenue; Number 4, Ochoa Street, north between San Antonio Avenue and Texas Avenue; Number 27, Ochoa Street, southbound between San Antonio Avenue and Paisano Drive; and Number 28, Florence Street, northbound between Paisano Drive and Overland Avenue; the penalty being as provided in Section 12.84.010 (Violation - Penalty) of the El Paso City Code	1	12.88.010
17215	10-13-2009	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.150 (Schedule XIV, Speed Limits), of the El Paso City Code by amending Subsection F (Thirty-Five Miles per Hour), Number 87, from Sun Fire Boulevard from Zaragoza Road to Flora Alba Drive to Sun Fire Boulevard; the penalty being as provided in Section 12.84.010 (Violation - Penalty) of the El Paso City Code	1	12.88.150 F.87.

Ordinance Number	Approval Date	Description	Section	Section this Code
17216	10-13-2009	An Ordinance authorizing the City Manager to execute a lease agreement between the City of El Paso and River Oaks Properties, LTD, ("River Oaks") to use the surface of a portion of an identified 60-foot easement leased to The El Paso Natural Gas in Tract 1P1, H.G. Foster Survey No. 256, City of El Paso, El Paso County, Texas		Omitted
17217	10-20-2009	An Ordinance amending Title 21, SmartCode, Chapter 21.10 (General to all Plans), Section 21.10.040 (Process), Paragraph C and D; and Chapter 21.80 (Tables), Section 21.80.170, Table 14 (Summary) and Section 21.80.180, Table 15a (Form-Based Code Graphics - T3); to correct typographical errors, and to amend the density requirements in T-4 and T-5. The penalty is as provided in Chapter 21.60 of the El Paso City Code	1	21.10.040 C., D.
			2	21.80.170
			3	21.80.180
17218	10-20-2009	An Ordinance changing the zoning of Lots 17 to 23 and the east 10 feet of Lot 24, Block 96, Highland Park Addition, City of El Paso, El Paso County, Texas, from R-3 (Residential) to R-3/H (Residential/Historic). The penalty is as provided in Chapter 20.24 of the El Paso City Code		Omitted
17219	10-20-2009	An Ordinance authorizing the City Manager to sign a Special Warranty Deed and any other necessary documents conveying approximately 35 acres of land being a portion of Section 30, Block 80, Township 1, Texas & Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas, to EP Plaza Partners, L.P., the highest and sole bidder		Omitted
17220	10-20-2009	An Ordinance authorizing the City Manager to execute a quitclaim (tax resale) deed conveying all right, title, and interest in real property described as Lots 21 through 27, Block 125, Highland Park Addition, an Addition to the City of El Paso, being more particularly described in Volume 495, Page 1743, Deed Records of El Paso County, Texas, to City of El Paso [El Paso Water Utilities/Public Service Board (EPWU/PSB)] for the El Paso Municipal Drainage Utility		Omitted
17221	10-20-2009	An Ordinance authorizing the City Manager to execute a quitclaim (tax resale) deed conveying all right, title, and interest in real property located at 3428 San Antonio Avenue to Francisco Perez		Omitted
17222	10-27-2009	An Ordinance granting Special Permit No. ZON09-00039, to allow for a 44% parking reduction on the property described as Lots 18 - 20 and the south 10 feet of Lot 17, Block 59, Alexander Addition, City of El Paso, El Paso County, Texas, pursuant to Section 20.14.070 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code		Omitted
17223	10-27-2009	An Ordinance changing the zoning of Parcel 1, a portion of Tract 1B4, S.J. Larkin Survey 266, City of El Paso, El Paso County, Texas, from C-3/C (Commercial/Conditions) to R-3A (Residential) and Parcel 2, a portion of Tract 1B4, S.J. Larkin Survey 266, City of El Paso, El Paso County, Texas, from A-O (Apartment/Office) to R-3A (Residential) and releasing conditions placed on Parcel 1 by Ordinance No. 15672. The penalty is as provided for in Chapter 20.24 of the El Paso City Code		Omitted
17224	10-27-2009	An amendment to the Ordinance No. 016769 granting a franchise for Elite Medical Transport, LLC, to operate a non-emergency ambulance transfer service to extend the term		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17225	11- 3-2009	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.44 (Stopping, Standing, and Parking Generally), Section 12.44.280 (Restrictions on Parking in Residential Parking Districts), of the El Paso City Code to provide for the creation and dissolution of Residential Parking Districts, issuance and revocation of Visitor, Owner, New Resident, Temporary, and Resident parking permits and establishing fees; the penalty being as provided in Section 12.84 (Violation - Penalty) and Section 12.85 (Parking Violations) of the El Paso City Code.	1	12.44.280
17226	11- 3-2009	An Ordinance authorizing the City Manager to execute a lease agreement between the City of El Paso and El Paso Healthcare System Ltd. d/b/a Del Sol Medical Center for the use of approximately 96.38 square feet in the Tigua Health Center at 7862 San Jose Road, El Paso, Texas.		Omitted
17227	11- 3-2009	An Ordinance authorizing the City Manager to execute a lease agreement between the City of El Paso and El Paso Healthcare System Ltd. d/b/a Del Sol Medical Center for the use of approximately 93.30 square feet in the Westside Health Center, at 5195 Mace Road, El Paso, Texas.		Omitted
17228	11- 3-2009	An Ordinance authorizing the City Manager to execute a lease agreement between the City of El Paso and El Paso Healthcare System Ltd. d/b/a Del Sol Medical Center for the use of approximately 222.43 square feet in the Northeast Health Center at 5587 Transmountain Road, El Paso, Texas.		Omitted
17229	11- 3-2009	An Ordinance authorizing the City Manager to execute a lease agreement between the City of El Paso and El Paso Healthcare System Ltd. d/b/a Del Sol Medical Center for the use of approximately 159.46 square feet in the Henderson Health Center at 721 South Mesa Street, El Paso, Texas.		Omitted
17230	11- 3-2009	An Ordinance granting Special Permit No. ZON09-00058 to allow an Assisted Living Facility on the site of the property described as being all of Lot 1, Block 1, Falvey Estates, City of El Paso, El Paso County, Texas, pursuant to Sections 20.08.030 of the El Paso City Code. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17231	11- 3-2009	An Ordinance amending Ordinance No. 017176 which imposed a moratorium for a period of ninety days on the acceptance of applications for permits and issuance of permits for the erection, construction, or modification of off premise signs or billboards, to extend the moratorium period for sixty additional days.		Omitted
17232	11- 3-2009	An Ordinance amending Title 3 (Revenue and Finance), Chapter 3.04 (Property Taxes), Section 3.04.035 (Exemption — Historically Significant Sites), of the El Paso City Code; to designate different reviewing authorities for properties depending on the existence of a historic district zoning overlay; to clarify the processes for obtaining a tax exemption; and to provide for appeals processes.	1	3.04.035
17233	11- 3-2009	An Ordinance amending Title 20 (Zoning), Chapter 20.20 (Historic Landmark Preservation), to amend Section 20.20.080 to clarify the process by which historic properties in areas of potential effect obtain a tax exemption through preservation of the property.	1 Added	20.20.080 C.4.
			2	20.20.080 H.

Ordinance Number	Approval Date	Description	Section	Section this Code
17234	11-10-2009	An Ordinance granting Special Permit No. ZON09-00040 to allow for a 38.7% parking reduction on the property described as Lots 1 thru 6, the west 15 feet of Lot 7, Lots 17, 18 and 19, Block 1, Franklin Heights Addition, an Addition to the City of El Paso, El Paso County, Texas; Lots 7 thru 20, Block 214, Campbell Addition, an Addition to the City of El Paso, El Paso County, Texas; a portion of Ange Street closed by Ordinance No. 017061 lying between Block 1, Franklin Heights Addition and Block 214, Campbell Addition, City of El Paso, El Paso County, Texas; a portion of a 20-foot wide alley closed by Ordinance No. 017062 lying between Lots 11 thru 14, and Lots 7 thru 10, Block 214, Campbell Addition and a portion of a 18-foot wide alley between Lots 1 thru 3, and 17 thru 19, Block 1, Franklin Heights Addition, City of El Paso, El Paso County, Texas, pursuant to Section 20.14.070 (Parking Reduction) of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code.		Omitted
17235	11-10-2009	An Ordinance to amend Title 20 (Zoning) to amend various sections thereunder pertaining to the duties and structure of the Development Services Department, and the duties of staff; and to clarify the type of criminal penalty for a violation; the penalty being as provided in Section 20.24.020 of the El Paso City Code.	1	20.02.158
			2	20.04.810 C.
				20.04.700 B.
				20.04.820 B.
			3	20.10.365 B.
				20.10.455 D.3.e.iii.
				20.10.455 E.3.e.iii.
				20.10.455 G.3.e.iii.
				20.10.600 A.
				20.10.680 E.
			4	20.24.020
17236	11-10-2009	An Ordinance to amend Title 19 (Subdivisions) to amend various sections thereunder to change the references to the former Planning and Building Permits & Inspections Departments to the Development Services Department, to correctly reference and assign City staff to enforce the code; to correct terminology and reconcile the wording used in Title 19 with similar provisions and references in other code titles so as to be uniform, including the creation of the penalty; to revise definitions so as to be uniform with other code provisions and delete unnecessary definitions; to revise the process for amending the title; and to incorporate the fee reduction incentives previously adopted in Ordinance No. 016878 into the title's current section numbers and to repeal Ordinance No. 016878; The penalty being as provided in section 19.42.070 of the El Paso City Code.	1	19.01.010 D.
			2	19.01.050 A.
				19.01.060 B.
				19.03.020 C.
				19.04.020 E.
				19.06.020 B.
				19.07.040 D.

Ordinance Number	Approval Date	Description	Section	Section this Code
				19.26.020 B.
				19.26.040 B.
				19.31.010 A.
				19.37.140 A.
				19.37.140 E.
				19.37.140 H.
			3	19.20.040
				19.20.070
				19.42.010
			4	19.20.030 B.
			5	19.37.060
			6	19.16.010 A.
				19.16.030 A.
				19.20.100 A.
				19.32.010
			7	19.08.050 C.3.
				19.31.060
				19.37.050 B.2.
			8	19.03.020 G.1.
				19.04.020 G.1.
				19.34.010
				19.37.050 B.2.
				19.39.020
				19.50.030
			9	19.46.040 A., B.
				19.46.040 D.
				19.46.040 F.2.
			10	19.01.060 C.
			11	19.08.010 B.
			12	19.08.020 D.
			13	19.15.150 D.
			14	19.26.050
			15	19.31.040
			16	19.31.060
			17	19.33.010
			18	19.37.070
			19	19.42.010
			20	19.42.020
			21	19.42.040
			22	19.42.070 A.
			23 Rpld	19.43
			24	19.50.020

Ordinance Number	Approval Date	Description	Section	Section this Code
			25, 26	19.50.030
			27	19.01.010 B., C.
				19.01.030 9.
				19.01.040 B.6.
				19.01.050
				19.02.010 B.1.
				19.02.040 A.2.
				19.02.040 B.
				19.03.010 A.
				19.03.030 A.
				19.04.010 A.
				19.04.020 F.2.
				19.04.030 A.
				19.04.040 B.5.
				19.04.040 C.2.
				19.04.050 A.3.
				19.06.010 B.2.
				19.06.040 A.
				19.08.010 A.
				19.08.010 H.
				19.08.010 J.
				19.08.040 A.
				19.08.040 B.1.
				19.08.040 C.2., 3.
				19.09.010 B.
				19.11.020 B.2.b.
				19.11.020 D.2.
				19.11.030 B.5.
				19.12.010 B.3.
				19.13.010 B.4.
				19.14.010 A.5.
				19.15.020 B.1.b., B.3.
				19.15.030 A.
				19.18.010 B.1.
				19.19.040 C.
				19.20.020 D.
				19.20.030 B.2.a.xii.
				19.20.050 A.7.
				19.20.050 B.2.
				19.20.100 E.
				19.20.130 A.3.
				19.20.130 C.

Ordinance Number	Approval Date	Description	Section	Section this Code
				19.21.010 C.9.
				19.21.030 C.
				19.23.010 B.3.
				19.24.030 A.3.
				19.26.010
				19.26.020 B.
				19.26.060 C.
				19.30.010
				19.30.020
				19.30.020
				19.30.040
				19.31.010 A., B.
				19.31.020 B.
				19.31.090
				19.37.080
				19.37.090 C.
				19.37.100 C.
				19.37.120
				19.42.050
				19.45.010 D.
				19.45.030 C.
				19.46.020 B.
				19.47.030 D.
				19.48.030 A.8.
				19.48.030 D.2.
				19.50.030
17237	11-10-2009	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.110 (Schedule IX - Special Truck Routes for Hazardous Material Carrying Vehicles), of the El Paso City Code by amending the routes on Loop 375, Americas Avenue (Loop 375 Frontage), Joe Battle Boulevard (Loop 375 Frontage), and Zaragoza Road and adding SPUR 601 between Patriot Freeway (U.S. 54) and Loop 375. The penalty being as provided in Section 12.84.010 (Violation - Penalty) of the El Paso City Code.	1	12.88.110 4.—6.
				12.88.110 8.
			Added	12.88.110 19.
17238	11-17-2009	An Ordinance Amending Title 19 (Subdivisions), Chapter 19.20 (Parks and Open Space), Section 19.20.090 (Provision for Private Park Facilities and Private Open Space) and Section 19.20.100 (Provision for Bonus Reductions for Additional Land or Facilities on New or Existing Public Parklands), of the El Paso City Code to amend credit procedures for private park facilities and off-site park facilities. The Penalty as provided in Chapter 19.42 of the City of El Paso City Code.	1	19.20.090
			2	19.20.100

Ordinance Number	Approval Date	Description	Section	Section this Code
17239	11-17-2009	An Ordinance amending the Final Project Plan and Final Reinvestment Zone Financing Plan for Tax increment Reinvestment Zone Number Five, City of El Paso; adopting said amendments as required by Section 311.011(E) Texas Tax Code; also, providing a severability clause.		Omitted
17240	11-17-2009	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.030 (Schedule III — Parking Prohibited at All Times on Certain Streets) of the El Paso City Code to prohibit parking on Marcus Uribe Drive between Loma De Color Drive and the east city limits, both sides, and Sean Haggerty Drive between McCombs Drive and the north city limits, with the exception of the north-side of the 5700 block. The penalty being as provided in Section 12.84.010 (Violation - Penalty) of the El Paso City Code.	1 Added	12.88.030 446., 447.
17241	12- 1-2009	An Ordinance authorizing the issuance of "City of El Paso, Texas, Municipal Drainage Utility System Revenue Bonds, Series 2009A;" and resolve matters which are necessary to effectuate said issuance.		Omitted
17242	12- 1-2009	An Ordinance changing the zoning of all of Lot 9 and the north 10 feet of Lot 8, Block 273, Campbell Addition, City of El Paso, El Paso County, Texas, from A-2 (Apartment) to A-O (Apartment/Office). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17243	12- 1-200	An Ordinance granting Special Permit No. ZON09-00042 to allow a beauty salon and 100% parking reduction in off-street parking requirement on the property described as all of Lot 9 and the north 10 feet of Lot 8, Block 273, Campbell Addition, City of El Paso, El Paso County, Texas, pursuant to Section 20.14.070 and 20.04.320 of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17244	12- 1-2009	An Ordinance releasing conditions placed on property by Ordinance No. 9364 which changed the zoning on Lot 1, Block 1, Plexxar III Unit One, Tracts 2D, 2D1, and 4, Nellie D. Mundy Survey 240, a portion of Tract 10B4A, Nellie D. Mundy Survey 239, and all of Tract 2D4, Nellie D. Mundy Survey 243, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17245	12- 1-2009	An Ordinance releasing conditions placed on property by Ordinance No. 9364 which changed the zoning on a portion of Lots 2 and 3, Block 2, Plexxar South Unit 2, Tract 1M, S.J. Larkin Survey 264, Tracts 1B7 and 1B8, S.J. Larkin Survey 266 and Tract 6E, WH Lenox Survey 242, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17246	12- 1-2009	An Ordinance releasing conditions placed on property by Ordinance No. 9364 which changed the zoning of Westport Unit Seven Amending Subdivision, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17247	12- 1-09	An Ordinance releasing conditions placed on property by Ordinance No. 9364 which changed the zoning of a portion of Lot 1, Block 1, Plexxar South, Tracts 61C and 62D, W.H. Glenn Survey 241 and Tract 1B6, S.J. Larkin Survey 266, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17248	12- 8-2009	An Ordinance granting Special Permit No. ZON09-00052 to allow for a ground-mounted 60' personal wireless service facility on the property described as Lot 4, Block 6, Coronado Country Club Estates, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.455 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code.		Omitted
17249	12- 8-2009	An Ordinance changing the zoning of Lot 18, Block 258, Vista Del Sol Unit 45, City of El Paso, El Paso County, Texas, from A-2 (Apartment) to A-O (Apartment/Office), and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17250	12-15-2009	An Ordinance changing the zoning of a portion of Lot 27, Block 123, Chaparral Park Unit 33, City of El Paso, El Paso County, Texas, from A-O/C (Apartment-Office/Conditions) to C-1/C (Commercial/Conditions). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17251	12-15-2009	An Ordinance amending Title 19 (Subdivisions), Chapter 19.01 (Provisions Applicable to all Platting Procedures); Chapter 19.02 (Land Studies), Chapter 19.03 (Preliminary Plats), Chapter 19.04 (Final Plats), Chapter 19.06 (Minor Plats), Chapter 19.07 (Revisions to Recorded Plats); Chapter 19.11 (Extra Territorial Jurisdiction (ETJ) Standards), Chapter 19.15 (Roadways); Chapter 19.18 (Traffic Impact Analysis), Chapter 19.20 (Parks and Open Space); Chapter 19.23 (Easements, Block and Lot Design Improvement Standards), Chapter 19.50 (Definitions) of the El Paso City Code to add exceptions to platting and allow for administrative approvals of minor revisions to Land Studies; to amend provisions for preliminary plats, minor plats and recordation; to amend the effect of final plat approval; to amend street improvement design and roadway provisions; to revise provisions for amending plats; to amend dedications to the City and vacation procedures; to amend requirements in the Extended Territorial Jurisdiction (ETJ); and to add a definition for public facility. The penalty is as provided for in Section 19.42 of the El Paso City Code.	1	19.01.010 C.2.
			Added	19.02.030 12.
			2	19.02.070 A.
				19.02.070 B.4.
			3	19.03.010 B.
			4	19.04.010 C.
			5	19.06.010 C.
				19.06.020 B.
			6	19.07.040 B.10.
			7	19.10.020 A.
			8	19.11.040 A.
			9	19.15.020 B.2.
				19.15.040
			10	19.18.010 B.1.a.
			11	19.20.020 A.
				19.20.020 B.2.
				19.20.030 A.1.d.
				19.20.050 C.

Ordinance Number	Approval Date	Description	Section	Section this Code
				19.20.080 A.
			12	19.23.040 C.
			13	19.50.030
17252	12-15-2009	An Ordinance amending Ordinance No. 017216 which authorized the City Manager to execute a lease agreement between the City of El Paso and River Oaks Properties, Ltd., and other related documents, to allow the surface use of a portion of Tract 1P1, H. G. Foster Survey No. 256, City of El Paso, El Paso County, Texas, for the purpose of correcting a clerical error in the legal description of the premises.		Omitted
17253	12-22-2009	An Ordinance authorizing the issuance of "City of El Paso, Texas, Water And Sewer Revenue Refunding Bonds, Series 2010;" and resolve matters which are necessary to effectuate said issuance, including a delegation of authority.		Omitted
17254	12-22-2009	An Ordinance releasing conditions placed on Tract 2D and Tract 2E-1, E.L. De Shazo Survey No. 218, City of El Paso, El Paso County, Texas, by contract dated March 7, 1957, which changed the zoning on the property. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17255	12-22-2009	An Ordinance granting Special Permit No. ZON09-00053 to permit an assisted living facility and a convalescent home, on the property described as being a portion of Blocks 1 and 30 and portions of ROW out of Silver Cholla Drive and Moon Ranch Court and all of Cow Ranch Court, all within Sandstone Ranch Unit 7, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.320 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code.		Omitted
17256	12-22-2009	An Ordinance vacating a portion of Poplar Street right-of-way, City of El Paso, El Paso County, Texas.		Omitted
17257	12-22-2009	An Ordinance amending Title 19 (Subdivisions), Chapter 19.15 (Roadways), Section 19.15.060 (Street Standards), Section 19.15.090 (Cul-de-sac Streets), and Section 19.15.110 (Street Width and Design), of the El Paso City Code to allow for alternative road design. The penalty as provided in Chapter 19.42 of the City of El Paso City Code.	1	19.15.060 K.
				19.15.090
				19.15.110
17258	12-22-2009	An Ordinance amending the Final Project Plan and Final Reinvestment Zone Financing Plan for Tax increment Reinvestment Zone Number Five, City of El Paso; adopting said amendments as required by Section 311.011(E), Texas Tax Code; also providing a severability clause.		Omitted
17259	12-22-2009	An Ordinance granting a franchise to Life Ambulance Service, Inc. to operate a non-emergency ambulance transfer service.		Omitted
17260	12-22-2009	An Ordinance granting a franchise to Elite Medical Transport to operate a non-emergency ambulance transfer service.		Omitted
17261	1- 5-2010	An Ordinance amending Title 20 (Zoning), Chapter 20.14 (Off-Street Parking, Loading and Storage Standards), Article I (Vehicular Parking), Section 20.14.070 (Parking Reductions), to allow administrative approval of up to a ten percent parking reduction. The penalty is as provided for in Chapter 20.24 of the El Paso City Code	1	20.14.070 D.

Ordinance Number	Approval Date	Description	Section	Section this Code
17262	1- 5-2010	An Ordinance amending Title 20 (Zoning), Chapter 20.14 (Off-Street Parking, Loading and Storage Standards), Section 20.14.050 (Required Parking), to add provisions for Improvement District No. 3. The penalty is as provided for in Chapter 20.24 of the El Paso City Code	1	20.14.050 D.
17263	1-12-2010	An Ordinance vacating a portion of Portland Avenue, City of El Paso, El Paso County, Texas		Omitted
17264	1-12-2010	An Ordinance amending Ordinance No. 017176 which imposed a moratorium for a period of ninety days and Ordinance No. 017231 which extended the moratorium period an additional sixty days on the acceptance of applications for permits and issuance of permits for the erection, construction, or modification of off premise signs or billboards, to extend the moratorium period for one hundred and twenty additional days		Omitted
17265	1-12-2010	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.56 (Schedules), Section 12.56.020 (Installation), of the El Paso City Code by providing that the International Bridges Director may designate areas in which the parking meter fee may be required for particular hours and providing for exceptions. The penalty being as provided in Section 12.84.010 (Violation - Penalty) of the El Paso City Code	1	12.56.020
17266	1-12-2010	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.030, Schedule III (Parking Prohibited at All Times on Certain Streets), of the El Paso City Code by amending Number 34, "Schuster Avenue between Oregon Street and Campbell Street, both sides" to "Schuster Avenue between Campbell Street to its terminus at the west end, both sides" and to delete Number 88 "Schuster Avenue from Sun Bowl Road to Hawthorne Street, both sides". The penalty being as provided in Section 12.84.010 (Violation - Penalty) of the El Paso City Code	1	12.88.030 34.
			2 Rpld	12.88.030 88.
17267	1-12-2010	An Ordinance amending Title 9 (Health and Safety), Chapter 9.36 (Air Pollution), of the El Paso City Code by deleting Section 9.36.050 and by adding Section 9.36.100 (Disposal Fire Exception). The penalty as provided in Sections 9.52.030.105.1.1 of the El Paso City Code	1 Rpld	9.36.050
			2	9.36.060
			3 Added	9.36.100
17268	1-26-2010	An Ordinance amending Ordinance No. 017241 adopted on December 1, 2009, authorizing the issuance of "City of El Paso, Texas, Municipal Drainage Utility System Revenue Bonds, Series 2009A;" and resolving matters which are necessary to effectuate said issuance		Omitted
17269	1-26-2010	An Ordinance changing the zoning of Tract 6B, Block 5, Upper Valley Surveys, City of El Paso, El Paso County, Texas, from R-3/SC (Residential/Special Contract) to A-2/SC (Apartment/Special Contract), and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code		Omitted
17270	1-26-2010	An Ordinance amending Title 19 (Subdivisions), Chapter 19.15 (Roadways), Section 19.15.110 (Street Width and Design), of the El Paso City Code to remove 36-foot wide paving widths on local, single family residential streets. The penalty as provided in Chapter 19.42 of the El Paso City Code	1	19.15.110 A.

Ordinance Number	Approval Date	Description	Section	Section this Code
17271	1-26-2010	An Ordinance amending Title 5 (Business, Taxes, Licenses and Regulations), Chapter 5.32 (Public Swimming Pool Licenses), clarifying the application processing and license issuance provisions in 5.32.060 and 5.32.070; moving the correction and re-inspection, suspension, revocation, and appeals processes to Chapter 9.48; adding a water sampling fee to Section 5.32.140 (Fees); the penalty as is provided in Section 5.32.160 of the El Paso City Code	1 Rpld	5.32.020 C.
			Rnbd	5.32.020 D.—T.
			as	5.32.020 C.—S.
				5.32.020 R., S.
			2 Added	5.32.050 E.
			Rnbd	5.32.050 E.
			as	5.32.050 F.
			3	5.32.060 C.
			4	5.32.070 A.
				5.32.070 F.
			5	5.32.090 A.
			Added	5.32.090 F.
			6	5.32.100
			7	5.32.110
			8	5.32.120
			9	5.32.130
			10	5.32.140
17272	1-26-2010	An Ordinance amending Title 9 (Health and Safety), Chapter 9.48 (Public Swimming Pools and Spas), to delete references to bacteriological water sampling; to clarify signage in Section 9.48.130; to clarify violation categories in Section 9.48.150; to clarify suspension criteria in Section 9.48.250; to add revocation and appeal language in Sections 9.48.255 and 9.48.270, respectively; the penalty as provided in Section 9.48.260 of the El Paso City Code	1	9.48.050
				9.48.100
				9.48.110
				9.48.130 A.
			2	9.48.030 B.
			3 Rpld	9.48.040 B.
			Rpld	9.48.040 H.
			Rpld	9.48.040 L.
			Rpld	9.48.040 O.
			Rnbd	9.48.040 C.—Z.
			as	9.48.040 B.—V.
				9.48.040 V.
			4	9.48.110
			5	9.48.120 A.
				9.48.120 C.
			6	9.48.130 C.

Ordinance Number	Approval Date	Description	Section	Section this Code
				9.48.130 E.
			7	9.48.140 A.
			8	9.48.150 A.
				9.48.150 D., E.
			9	9.48.250 A.
				9.48.250 C.
			Added	9.48.250 D.—F.
			10 Added	9.48.255
			11 Added	9.48.270
17273	2- 9-2010	An Ordinance to renew and extend a special privilege to St. Mark's United Methodist Church to permit and regulate the construction, maintenance, and use of one subsurface stormwater drainage pipe within a portion of Oleander Way, City of El Paso, El Paso County, Texas for a term of fifteen years with one renewable term of fifteen years.		Omitted
17274	2- 9-2010	An Ordinance authorizing the City of El Paso to sell approximately 1,856 square feet, being a portion of O.A. Danielson Survey, Number 315, El Paso, El Paso County, Texas, to the State of Texas, acting by and through the Texas Department of Transportation, said parcel to be included in a highway construction project for IH-10 at Loop 375.		Omitted
17275	2-16-2010	An Ordinance granting Special Permit No. ZON09-00074, to allow for an infill development and reduce the side street yard setback for a boarding house on the property described as Lots 15 and 16, Block 17, Franklin Heights, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code.		Omitted
17276	2-16-2010	An Ordinance amending Title 19 (Subdivisions), Chapter 19.01 (Provisions applicable to all platting procedures), Section 19.01.030 (Exemptions) of the El Paso City Code to allow an exemption for duplexes and to clarify an application requirement for exemptions. The penalty is as provided for in Section 19.42 of the El Paso City Code.	1	19.01.030
17277	2-16-2010	An Ordinance amending Ordinance 16013 to extend the term of Ordinance 16013, which granted a special privilege to Mario Hernandez, Hector Cobos, Jr., Eber Martinez, Maria Cobos, Margarita Cobos, Juan Torres, Pedro Orona, Hector Cobos, Maria Prieto, Maria Grado, Jack Kellog, Jesus Hernandez, Eusebio Coronel, Victor Ochoa, Carmen Cox, Maria Chavez, Eunise Morales, Maria Barraza, Santiago Aguilar and Brandon Palma to encroach onto a portion of various public rights-of-way with a food-vending concession in the downtown area.		Omitted
17278	2-23-2010	An Ordinance granting Special Permit No. ZON09-00076, to allow for infill development with reduced rear setback to 8 feet; side yard setbacks to 4 feet and, reduced lot area in order to construct a 2,540 square foot duplex on a 6,000 square foot lot on the property described as Lots 26 and 27, Block 115, amended map of Morningside Heights Addition, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17279	2-23-2010	An Ordinance granting Special Permit No. ZON09-00073, to allow for a fifty-six percent (56%) parking reduction on the property described as Lots 1-10, Block 223, Alexander Addition, City of El Paso, El Paso County, Texas, pursuant to Section 20.14.070 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code.		Omitted
17280	2-23-2010	An Ordinance granting Special Permit No. ZON09-00022, to allow for governmental uses and buildings on the property described as being all of Tracts 3A, 3A1, G.M. Collingsworth Survey No. 14, a portion of Tract 1B, Guadalupe Lucero Survey No. 45, a portion of Tract 15B, Ysleta Grant, Block 21, a portion of United States Parcel No. 3, a portion of Ascarate Street also known as first street, and a portion of the Old River Bed known as Tract 4, (described July 9, 1938, in Book 632, Page 559, Deed Records, El Paso County, Texas) City of El Paso, El Paso County, Texas, pursuant to Section 20.08.030 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code.		Omitted
17281	2-23-2010	An Ordinance authorizing the City Manager of the City of El Paso to sign a special warranty deed conveying approximately 20.0155 acres of land being a portion of Tract 8, Section 16, Block 80, Township 1, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas, to Jobe Materials, L.P. also authorizing the city manager to sign any and all documents necessary to complete the sale of the land.		Omitted
17282	3- 2-2010	An Ordinance releasing conditions placed on Tract 12 and 12A, Section 36, Block 80, Township 2, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17283	3- 9-2010	An Ordinance changing the zoning of a portion of Lot 2, Block 1, Sandstone Ranch Estates Unit Two, City of El Paso, El Paso County, Texas, from A-2 (Apartment) to A-3 (Apartment). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17284	3- 9-2010	An Ordinance changing the zoning of a portion of Tract 4B, Section 38, Block 79, Township 2, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas, from A-2 (Apartment) to C-1/C (Commercial/Condition), and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17285	3- 9-2010	An Ordinance amending the plan for El Paso and the Year 2025 General Land Use Map by adopting the El Paso Historic Preservation Plan.		Omitted
17286	3- 9-2010	An ordinance amending Title 12 (Vehicles and Traffic) to create Chapter 12.22 (Wireless Communications Devices) of the El Paso City Code, to prohibit the use of wireless communication devices while operating a motor vehicle, and creating an offense; the penalty being as provided in Sections 1.08-010 - 1.08.030 and Section 12.84.010 of the El Paso City Code.	2 Added	12.22.010
			3 Added	12.22.020
17287	3-16-2010	An Ordinance changing the zoning of Lots 1,2, and the south 8 feet of Lot 3, Block 88, Campbell Addition, City of El Paso, El Paso County, Texas, from C-1 (Commercial) to S-D (Special Development). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17288	3-16-2010	An Ordinance amending Title 2 (Administration and Personnel), Chapter 2.16 (Zoning Board of Adjustment), Section 2.16.050 (Special Exceptions), of the El Paso City Code to amend the special exceptions for front, side street, and rear yard setbacks, reduction of off-street parking requirements, and carport over a driveway. The penalty is as provided in Chapter 20.24 (Enforcement-Penalty) of the El Paso City Code.	2	2.16.050
			3	2.16.050 C.
			4	2.16.050 D.
			5	2.16.050 F.
			6	2.16.050 I.
			7	2.16.050 K.
			8	2.16.050 M.
17289	3-16-2010	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.040 (Schedule IV - Parking Prohibited During Certain Hours On Certain Streets), Subsection J (No Parking 7 a.m. to 4 p.m.) of the El Paso City Code, by adding Hadlock Street from a point 50 feet south of Alameda Avenue to Dunne Avenue, west side only; the penalty being as provided in Section 12.84.010 (Violation—Penalty) of the El Paso City Code.	1 Added	12.88.040 J.10.
17290	3-16-2010	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.48 (Loading Zones, Bus and Taxistands), Section 12.48.040 (Public Carrier Stops, Stands, and Routes - Authority To Designate) Requiring the Traffic Engineer To Designate Routes and Stops For Passenger Common-Carrier Vehicles, and Repealing Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.081 (Schedule VIIIA - Common Carrier Passenger Route Established); The Penalty Being As Provided In Chapter 12.84 (Violations - Penalty) of the El Paso City Code.	1	12.48.040
			2 Rpld	12.88.081
17291	3-23-2010	An Ordinance changing the zoning of Lot 17, Block 258, Vista Del Sol Unit 45, City of El Paso, El Paso County, Texas from A-O/C (Apartment/Office/Conditions) To C-LI C (Commercial/Conditions), modifying Condition No. 1 placed on the property by Ordinance No. 9955, and adding two conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17292	3-23-2010	An Ordinance changing the zoning of a portion of Lots 1-7, Block 229, Alexander Addition, City of El Paso, El Paso County, Texas from R-4 (Residential) to C-l (Commercial) and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17293	3-23-2010	An Ordinance changing the zoning of Lots 17 - 20, Block 121, amended map of Morningside Heights Addition, City of El Paso, El Paso County, Texas from R-5 (Residential) to A-2 (Apartment) and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17294	3-23-2010	An Ordinance granting Special Permit No. ZON09-00075, to allow for infill development on the property described as Lots 17-20, Block 121, Morningside Heights Addition, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17295	3-23-2010	An Ordinance authorizing the City Manager of the City of El Paso to sign a special warranty deed to convey to the State of Texas, approximately 3.304 acres of land known as Parts 1,2,3,6,7 and 9 of Parcel 4 along and adjacent to Fred Wilson Road and Marshall Road and being portions of Section 17, Block 81, Township 2, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas, for the State of Texas Spur 601 Highway Project. Also authorizing the city manager to sign any and all documents necessary to complete the sale of the land, such as, but not limited to, a disclaimer of interest in property.		Omitted
17296	3-23-2010	An Ordinance granting a special privilege to Texas Tech University Health Sciences Center El Paso permitting the construction, regulation, installation and maintenance of one (1) emergency telephone on a portion of public right-of-way at Alberta Avenue, and the regulation and maintenance of fiber optic telecommunications cable within four (4) one and one- quarter inch (1.25") subsurface conduits along portions of public right-of-way at Raynolds Street, Concepcion Street and Alberta Avenue.		Omitted
17297	3-23-2010	An Ordinance amending Title 12 (Vehicles And Traffic), Chapter 12.88 (Schedules), Section 12.88.030 (Schedule III-Parking Prohibited At All Times On Certain Streets) of the El Paso City Code To Delete The Prohibition Of Parking On Mills Avenue Between Ochoa Street and Virginia Street, South Side; the Penalty Being As Provided In Section 12.84.010 (Violation—Penalty) of the El Paso City Code.	1 Rpld	12.88.030 396.
17298	3-23-2010	An Ordinance Amending Title 9 (Health and Safety), Chapter 9.04 (Solid Waste Management) to delete references to the El Paso Downtown Management District and to address solid waste collection and related service in a designated required commercial collection area; to clarify class B generators in Section 9.04.040; adding requirements for the use of Class C-1 containers in Section 9.04.050; adding requirements for certain temporary events and activities in section 9.04.190; to clarify the frequency of collection services in section 9.02.220, the penalty in section 9.04.390 and the adoption of fees in sections 9.04.400 A. and 9.04.400 C.; the penalty as provided in section 9.04.390 of the El Paso City Code	1	9.04.030
			2	9.04.040 B.
			3	9.04.050 B.5.
				9.04.050 C.1.
			4	9.04.060 C.
			5	9.04.070 B.
			Rpld	9.04.070 C., D.
			6 Rpld	9.04.150 A.
			7	9.04.190 E.
			Added	9.04.190 F.
			8	9.04.220 D.
			9	9.04.390
			10	9.04.400 A.1.
				9.04.400 A.3.
				9.04.400 C.

Ordinance Number	Approval Date	Description	Section	Section this Code
17299	3-30-2010	An Ordinance changing the zoning of the following real property described as: Parcel 1: A portion of Lot 1, Block 300, Vista Del Sol Unit 62, Replat A, City of El Paso, El Paso County, Texas, be changed from M-1 (Light Manufacturing) to C-2 (commercial), and imposing conditions; and Parcel 2: A portion of Lot 1, Block 300, Vista Del Sol Unit 62, Replat A, City of El Paso, El Paso County, Texas, be changed from M-1 (Light Manufacturing) to A-3 (Apartment), and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17300	3-30-2010	An Ordinance vacating to public vehicular traffic a portion of River Bend between Little Lane and the Montoya Lateral, within Los Paseos replat a subdivision, City of El Paso, El Paso County, Texas		Omitted
17301	3-30-2010	An Ordinance vacating to vehicular traffic a portion of a 20.00 foot alley within Block 47, Campbell Addition, amending subdivision, City of El Paso, El Paso County, Texas		Omitted
17302	3-30-2010	An Ordinance vacating to vehicular traffic a portion of 8th Avenue between Stanton Street and Mesa Street, within Campbell Addition, amending subdivision, City of El Paso, El Paso County, Texas.		Omitted
17303	3-30-2010	An Ordinance changing the zoning of the following real property described as: Parcel 1: A portion of Tracts 3 and 8, Section 44, Block 79, Township 2, Texas and Pacific Railroad Surveys, City of El Paso, El Paso County, Texas, be changed from Q (Quarry) to A-O (Apartment/Office); and, Parcel 2A: A portion of Tract 8, Section 44, Block 79, Township 2, Texas and Pacific Railroad Surveys, City of El Paso, El Paso County, Texas, be changed from Q (Quarry) to C-2/C (Commercial/Condition), and imposing conditions; and, Parcel 2B: A portion of Tracts 5 and 8, Section 44, Block 79, Township 2, Texas and Pacific Railroad Surveys, City of El Paso, El Paso County, Texas, be changed from Q/SC (Quarry/Special Contract) to C-2/C (Commercial/Condition), and imposing conditions; and, Parcel 3A: A portion of Tract 8, Section 44, Block 79, Township 2, Texas and Pacific Railroad Surveys, City of El Paso, El Paso County, Texas, be changed from Q (Quarry) to C-4/C (Commercial/Condition), and imposing conditions; and, Parcel 3B: A portion of Tracts 5 and 8 and all of Tract 5A, Section 44, Block 79, Township 2, Texas and Pacific Railroad Surveys, City of El Paso, El Paso County, Texas; be changed from Q/SC (Quarry/Special Contract) to C-4/C (Commercial/Condition), and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17304	3-30-2010	An Ordinance authorizing the city manager to sign a lease agreement between the City of El Paso and El Paso Tennis and Swim Club, for the lease of a portion of Arroyo Park totaling 9.890 acres more or less, El Paso, Texas, for a term of twenty (20) years and replacing the lease agreement approved by Ordinance Nos. 2872, 4559,5826,6868 and 14092 which will expire in April of 2010.		Omitted
17305	4- 6-2010	An Ordinance changing the zoning of Lots 14 through 16, Block 59, east El Paso, City of El Paso, El Paso County, Texas, from R-5 (Residential) to A-O (Apartment-Office). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17306	4- 6-2010	An Ordinance amending Title 20 (Zoning), Chapter 20.02 (General Provisions and Definitions); Chapter 20.06 (Zoning Districts and Maps), Section 20.06.010 (Districts Established and Enumerated) and 20.06.020 (Purpose of Districts) and Chapter 20.10 (Supplemental Use Regulations), 20.16 (Screening and Fencing) and Appendix A (Table of Permissible Uses) and Appendix B (Table of Density and Dimensional Standards) of the El Paso City Code, to add a definition for Natural Open Space, establish a Natural Open Space District; establish standards for supplemental uses in Open Space Districts; to establish permissible use and density and dimensional standards in Open Space Districts. The penalty is as provided for in chapter 20.24 of the El Paso City Code.	1 Added	20.02.651
			Added	20.02.1151
			2	20.06.010 D.
			3 Added	20.06.020 D.13.
			4 Added	20.10.060 A.4.j.
				20.10.220
				20.10.240 B., C.
				20.10.250 A., B.
			Added	20.10.385
				20.10.455 H.
				20.10.490 A.2.b.
				20.10.490 A.11.
				20.10.490 B.1.
				20.10.520 A.9., 10.
				20.10.520 B.1., 2.
				20.10.520 B.9., 10.
				20.10.560
			5	20.16.020 A., B.
			Added	20.16.020 B.
			Rnbd	20.16.020 G.
			as	20.16.020 H.
			6	App. A
			7	App. B
17307	4- 6-2010	An Ordinance amending Ordinance No. 010873, Ordinance No. 12476, and Ordinance No. 14981 to approve the use of the User Agreements and User/Distribution Site Operator Agreements for Foreign Trade Zone No. 68 and to authorize the City Manager to execute these types of agreements on behalf of the City of El Paso.		Omitted
17308	4-13-2010	An Ordinance amending Ordinance No. 013980, as amended by Ordinances 014787, 015374 and 016006 which granted a Special Privilege to Keller & Azar Joint Venture, Inc. (Owner), and Boeing North American, Inc. (Lessee), as assigned to and transferred to Wes Uhlman & Associates, Inc./Mallard El Paso Limited Partnership (Owners) and The Boeing Company (Lessee) to permit the temporary use of a portion of Threadgill Avenue for security purposes, by extending the term through November 30, 2014.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17309	4-20-2010	An Ordinance changing the zoning of Tract 3A, Block 17, Ysleta Grant, City of El Paso, El Paso County, Texas, from A-2 (Apartment) to S-D (Special Development), and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17310	4-20-2010	An Ordinance authorizing the City Manager to execute a quitclaim (tax resale) deed conveying all right, title and interest in real property located at 634 Casa Grande Pl. to Aimee and Leonel Saldivar.		Omitted
17311	5- 4-2011	An Ordinance terminating the Special Privilege License granted in Ordinance No. 016107 to Great Vibe L.L.C. for use of certain City right-of-way for a sidewalk cafe located at 209 South El Paso Street.		Omitted
17312	5- 4-2010	An Ordinance changing the zoning of Lots 13 and 14, Block 2, Sahara Subdivision, City of El Paso, El Paso County, Texas from C-1/SC (Commercial/Special Contract) to C-3/SC (Commercial/Special Contract), and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17313	5- 4-2010	An Ordinance releasing conditions placed on property by Ordinance No. 6245 which changed the zoning of Lots 13 and 14, Block 2, Sahara Subdivision, City of El Paso, El Paso County, Texas, and which imposed conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17314	5- 4-2010	An Ordinance amending Title 20 (Zoning), Chapter 20.10 (Supplemental Use Regulations), Section 20.10.680 (Temporary Uses) to allow for a fair, festival, carnival or concert as a temporary use within an area zoned commercial or R-F (Ranch and Farm). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.	1	20.10.680 B.4.
17315	5- 4-2010	An Ordinance amending Title 2 (Administration and Personnel), Chapter 2.38 (Building and Standards Commission), Section 2.38.090 (Urban Nuisance; Repair, Demolition, Vacation, Reduction in Occupancy Load, Relocation, Securing, and Civil Penalties; Hearings; Notice), Subsection N of the El Paso City Code, to revise the provisions to be in conformity with state law.	1	2.38.090 N.
17316	5- 4-2010	An Emergency Ordinance pursuant to Section 3.10 of the Charter of the City of El Paso that City Code Section 13.24.040 regulating the hours of operation of City Parks does not apply to certain members of the United States Army while in uniform and conducting training and operations authorized by the United States Army on May 6, 2010 through May 7, 2010, to address the public emergency described and set forth in this Ordinance.		Omitted
17317	5- 4-2010	An Ordinance amending Title 20 (Zoning) Chapter 20.18 (Sign Regulations) of the El Paso City Code to amend Articles I, II, and III, to establish revised regulations for signs; to add definitions; to continue the prohibition of converting billboards to changeable electronic variable message (CEVM) displays; to continue the prohibition on CEVM billboards; to extend the sign regulations to the City's extraterritorial jurisdiction; to amend provisions for construction of new, static, non-CEVM billboards; to remove exemptions for governmental entities, and to establish appeal procedures. The penalty is as provided in Section 20.24 of the El Paso City Code.	1	20.18.010—20.18.050
			2	20.18.100—20.18.140
			3	20.18.200—20.18.300

Ordinance Number	Approval Date	Description	Section	Section this Code
17318	5- 4-2010	An Ordinance amending Title 20 (Zoning) Chapter 20.02 (General Provisions and Definitions), Article II, (Definitions) of the El Paso City Code to revise all the definitions related to signs. The penalty is as provided in Section 20.24 of the El Paso City Code.	1	20.02.874—20-02.978
				20.02.982—20.02.986
17319	5- 4-2010	An Ordinance amending Title 18 (Building and Construction), Chapter 18.08 (Building Code), Section 18.08.170 (Accessibility for People with Physical Disabilities), Subsection 1107.6.2.1.1 (Type A Units), of the El Paso City Code, by reducing the amount of required Type A Units from five percent to three percent; the penalty being as provided in Section 18.02.107 (Violations and Penalties) of the El Paso City Code.	1	18.08.170
17320	5-11-2010	An Ordinance granting Special Permit No. ZON10-00023, to permit governmental use and building, on the property described as Lots 11 to 18, Block 47, Campbell Addition, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.320 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code.		Omitted
17321	5-11-2010	An Ordinance to revise the process for obtaining a permit for a film-making event by amending Title 13 (Streets, Sidewalks, and Public Places), Chapter 13.30 (Film-Making Events), of the El Paso City Code; by amending provisions for the issuance of permits for certain types of uses of streets, alleys and other areas owned by the City for Film-Making Events; and by Amending Title 15 (Public Services) Chapter 15.08 (Special Privilege License) Section G.3 (Exception), changing the 24 Hour exception for temporary commercial film-making activities to 48 hours; the penalty being as provided in Section 13.30.130 (Violation) and Chapter 1.08 (General Penalty) of the City Code.	1	13.30.010
			2	13.30.020
			3—7	13.30.040—13.30.080
			8—10	13.30.110—13.30.130
			11	15.08.120 G.3.
17322	5-11-2010	An Ordinance granting a Special Privilege to Kelbor Enterprises, Inc. doing business as Coconuts, permitting the encroachment of an outdoor patio cafe onto portions of City right-of-way located at 816 Piedras Street and allowing the sale and service of alcoholic beverages as a permissable activity within the outdoor patio cafe area.		Omitted
17323	5-18-2010	An Ordinance granting Special Permit No. ZON10-00008, to allow for infill development on the property described as Lots 1-6, Block G, D. M. Payne's Subdivision, City of El Paso, El Paso County, Texas, pursuant to section 20.04.320 of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17324	5-18-2010	An Ordinance to amend Title 5 (Business Taxes, Licenses and Regulations), Chapter 5.80 by adding Section 5.80.120 (Authority to Issue Citations); the penalty being as provided in Chapter 1.08.010 - 1.08.030 of the El Paso City Code.	1 Added	5.80.120

Ordinance Number	Approval Date	Description	Section	Section this Code
17325	5-25-2010	An Ordinance amending Title 20 (Zoning), Chapter 20.10 (Supplemental Use Regulations), Section 20.10.080 (Animal Facilities) of the El Paso City Code to allow for an amendment to the distance requirement for small animal veterinary hospitals or clinics in an area zoned R-1 (Residential) or C-1, C-2, C-3, or C-4 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.	1	20.10.080 B.1.c.
			2	20.10.080 B.2.c.
17326	5-25-2010	An Ordinance changing the zoning of a portion of Lot 3, Block 16A, Scotsdale Unit 2A, City of El Paso, El Paso County, Texas from C-1 (Commercial) to C-2 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17327	5-25-2010	An Ordinance changing the zoning of a portion of Tract 1B, Nellie D. Mundy Survey No. 243, City of El Paso, El Paso County, Texas from R-3 (Residential) to R-3A (Residential). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17328	5-25-2010	An Ordinance granting Special Permit No. ZON09-00077, to allow for an 88% parking reduction on the property described as Lot 27 and the west 10 ft. of Lot 28, Block 69, Franklin Heights, City of El Paso, El Paso County, Texas, pursuant to Section 20.14.070 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code.		Omitted
17329	5-25-2010	An Ordinance amending the 2025 Proposed Thoroughfare System as detailed in the Map Atlas of the Plan for El Paso and its related documents as originally approved by El Paso City Council in 1999, and as subsequently amended, to delete the extension of Stanton Street, as a minor arterial, north of the existing terminus located north of Excalibur Drive.		Omitted
17330	5-25-2010	An Ordinance amending Ordinance No. 017298 relating to the collection of commercial solid waste in required commercial collection areas, to change the effective date.		Omitted
17331	5-25-2010	An Ordinance repealing Ordinance number 017042 (Transportation Reinvestment Zone Number One for El Paso, Texas): Declaring Ordinance number 017042 void.		Omitted
17332	5-25-2010	An Ordinance designating Transportation Reinvestment Zone Number Two for El Paso, Texas; describing the boundaries of the zone; providing for an effective date and a termination date for the zone; naming the zone "Transportation Reinvestment Zone Number Two, City of El Paso, Texas"; establishing a tax increment fund for the zone; and containing other provisions related thereto.		Omitted
17333	5-25-2010	An Ordinance designating Transportation Reinvestment Zone Number Three for El Paso, Texas; describing the boundaries of the zone; providing for an effective date and a termination date for the zone; naming the zone "Transportation Reinvestment Zone Number Three, City of El Paso, Texas"; establishing a tax increment fund for the zone; and containing other provisions related thereto.		Omitted
17334	5-25-2010	An Ordinance amending Title 9 (Health and Safety), Chapter 9.02 (Department of Public Health), Section 9.02.040 (Fees - Clinics and Laboratory) by adding subsection D, to allow for a sliding fee.	1 Added	9.02.040 D.

Ordinance Number	Approval Date	Description	Section	Section this Code
17335	6- 1-2010	An Ordinance to release the special contract imposed on property by Ordinance No. 8888 which changed the zoning of Tracts 1R and 1S, Block 5, Ascarate Grant, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17336	6- 1-2010	An Ordinance granting Special Permit No. ZON10-00007, to permit an Assisted Living Facility, on the property described as Lot 1, Block 1, Las Tres Marias, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.320 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code.		Omitted
17337	6- 1-2010	An Ordinance authorizing the City Manager to sign a lease agreement between the City of El Paso and Woodworkers Club of El Paso, Texas, Inc., for the lease of the property at 3228 Sacramento Avenue, El Paso, Texas, for a term of twenty (20) years, with one renewal option for an additional ten (10) years.		Omitted
17338	6- 1-2010	An Ordinance amending El Paso City Code, to uniformly define and use the terms "legal holiday" and "city observed holiday" within the City Code, to define the terms by amending Title 1 (General Provisions), Section 1.40.030 (Definitions and rules of construction); to change the word "holidays" to "legal holidays" by amending Title 5 (Business Taxes, Licenses and Regulations) Section 5.44.040 (Registration - form - filing), Title 9 (Health and Safety) Section 9.40.120 (Exemptions), Title 12 (Vehicles and Traffic) Sections 12.52.060 (Stopping, standing or parking prohibited during certain hours on any day), 12.88.170 (Schedule XVI-Parking limited on certain streets on all days), 12.88.180 (No stopping or standing-Tow-away Zone), and 12.88.190 (No stopping or standing at any time), Title 14 (Aircraft and Airports) Section 14.20.250 (Meters), and Title 18 (Building and Construction) Section 18.02.103.1.1.8 (Emergency work); to change the word "holidays" to "city observed holidays" by amending Title 18, Section 18.02.109.1.1.5 (Non-business hours inspection fee); and to eliminate other separate definitions of "legal holiday" by amending Title 12, Section 12.44.170 and Title 13 (Streets, Sidewalks and Public Places) Sections 13.28.010 and 13.36.010.	1	1.04.030
			2	5.44.040
			3	9.40.120 D.
			4	12.06.110
			5	12.52.060
			6	12.88.170
			7	12.88.180 J., K.
			8	12.88.190 A.
			9	13.28.010
			10	13.36.010
			11	14.20.250 B.
			12 Added	18.02.103.1.1.8
			13 Added	18.02.109.1.1.5
			14	18.44.170

Ordinance Number	Approval Date	Description	Section	Section this Code
17339	6- 1-2010	An Ordinance amending Ordinance 8064 (Classification and Compensation Plan) to amend Section 4.6 Legal Holidays, clarifying the holidays observed by the City, and the manner in which holidays observed by the City are administered for accrual and payment to City employees.		Omitted
17340	6- 1-2010	An Ordinance amending Ordinance 8065, Civil Service Rules and Regulations, amending Rule 1, (Civil Service Commission) Section 5, to provide for selection of the Chair of committees appointed by the Civil Service Commission; amending Rule 4 (Classification) Section 4, changing "An" to "A"; amending Rule 6 (Certification) decreasing the number of waivers from 5 to 3; amending Rule 13 (Leave of Absence, Resignation, Sick Leave and Vacations) to provide for Special Leave based on operational necessity, as determined by the City Manager, and to provide for required testing of uniformed employees requesting reinstatement to the Police Department; and amending Rule 25 (Driver Safety Standards) Section 3, to add the requirement to report an outstanding traffic warrant by employees with driving duties; as applicable to the Civil Service System of the City of El Paso and City Employees.		Omitted
17341	6- 8-2010	An Ordinance changing the zoning of a portion of Lot 1, Block 42, Ridge View Estates Unit Sixteen, City of El Paso, El Paso County, Texas from R-3A/SC (Residential/Special Contract) to C-1/SC (Commercial/Special Contract), and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17342	6-15-2010	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.150 (Schedule XIV, Speed Limits) of the El Paso City Code by amending Subsection G, forty miles per hour, Number 12: Socorro Road from 400 feet southeast of Southside Road and 450 feet southeast of Avenue of the Americas to 400 feet southeast of Southside Road and the southeast city limits; and to delete Number 2 in Subsection H, forty-five miles per hour, Socorro Drive between a point 450 feet southeast of Avenue of the Americas and the southeast city limits; the penalty being as provided in Section 12.84.010 (Violation—Penalty) of the El Paso City Code.	1	12.88.150 G.12.
			2 Rpld	12.88.150 H.2.
17343	6-15-2010	An Ordinance authorizing the City Manager of the City of El Paso to sign a quit claim deed to convey to the state of Texas, approximately 31.118 acres of land known as a portion of Fred Wilson Avenue, Marshall Road and Airport Road in the City of El Paso, located in Sections 19 and 30, Block 80, Township 2 and Sections 17, 18, 19 and 20, Block 81, Township 2, Texas and Pacific Railway Company surveys, El Paso County, Texas, said parcel to be included in the state of Texas Spur 601 controlled access highway project; and authorizing the City Manager to sign any and all documents necessary to complete the transfer of the land.		Omitted
17344	6-22-2010	An Ordinance changing the zoning of a portion of Lots 2 and 3, Block 2, Pan American Center for Industry Unit One, City of El Paso, El Paso County, Texas from M-1/SC/SP (Light Manufacturing/Special Contract/Special Permit) to C-3/SC/SP (Commercial/Special Contract/Special Permit). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17345	6-29-2010	An Ordinance amending Title 2 (Administration and Personnel), Chapter 2.64 (City Employees' Pension Fund), of the City Code, to amend the provisions in Section 2.64.030A, relating to the holding of elections when candidates are unopposed.	1	2.64.030 A.
17346	7-13-2010	An Ordinance authorizing the issuance of "City of El Paso, Texas, Water and Sewer Revenue Bonds, Taxable Series 2010 (Direct Subsidy - Build America Bonds)" in an amount of $15,000,000; and resolve matters which are necessary to effectuate said issuance.		Omitted
17347	7-13-2010	An Ordinance granting Special Permit No. ZON10-00017, to permit an assisted living facility and a convalescent home, on the property described as Lots 17, 18, and 19, Rangers Rest Subdivision, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.320 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code.		Omitted
17348	7-13-2010	An Ordinance changing the zoning of a portion of Section 22, Block 81, Township 1, Texas and Pacific Railroad Company Surveys, City of El Paso, El Paso County, Texas from R-3A (Residential) to R-5 (Residential). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17349	7-13-2010	An Ordinance amending Title 19 (Subdivisions) of the El Paso City Code to amend the procedural requirements of Chapter 19.24 (Mountain Development Area (MDA) Standards) and to add Chapter 19.27 (Hillside Development Area) which establishes the Hillside Development Area and the procedural requirements for the area. The penalty is as provided for in Section 19.42 of the El Paso City Code.	1	19.24.020
			2	19.27.010, 19.27.020
17350	7-13-2010	An Ordinance vacating a utility easement measuring 10.10 feet in width, located within a portion of Lots 1 and 2, Block 16A, Scotsdale Unit 2A, City of El Paso, El Paso County, Texas.		Omitted
17351	7-13-2010	An Ordinance authorizing the City of El Paso to sell the property municipally known and numbered as 800 S. Piedras aka 2914 E. Paisano to International Communications of El Paso, Inc.		Omitted
17352	7-13-2010	An Ordinance amending Title 2 (Administration and Personnel), Chapter 2.22 (Open Space Advisory Board), Section 2.22.050 (Board Duties) of the El Paso City Code to clarify the duties of the Open Space Advisory Board.	1	2.22.050
17353	7-13-2010	An Ordinance authorizing the City Manager to execute a quitclaim (tax resale) deed conveying all right, title and interest in real property described as Lots 3, 4, and 5 in Block 92 of the Grandview Addition to the City of El Paso, El Paso County, Texas, to Jorge M. Sanchez, in accordance with Section 34.05(H) of the Tax Code.		Omitted
17354	7-13-2010	An Ordinance authorizing the City Manager to execute a quitclaim (tax resale) deed conveying all right, title and interest in real property located at 3418 Louisville Ave. to General Interiors, in accordance with Section 34.05(H) of the Tax Code.		Omitted
17355	7-20-2010	An Ordinance changing the zoning of a Tracts 11B1, 11B3B, and 11B5, Block 5, Ysleta Grant, City of El Paso, El Paso County, Texas from R-F (Ranch & Farm) to R-2 (Residential). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17356	7-20-2010	An Ordinance granting Special Permit No. ZON10-00033, to allow for infill development and a 100% parking reduction on the property described as Lots 7 and 8, Block 32, Franklin Heights, City of El Paso, El Paso County, Texas, pursuant to Section 20.14.070 parking reduction and 20.10.280 infill development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17357	7-20-2010	An Ordinance releasing a condition placed on property by Ordinance No. 011107 which changed the zoning of Tract 14G, Block 51, Ysleta Grant, City of El Paso, El Paso County, Texas and which imposed a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17358	7-20-2010	An Ordinance amending Title 20 (Zoning), Chapter 20.04 (Administrative Provisions), Section 20.04.060 (Planning Division, Development Services Department) of the El Paso City Code to add referrals to the Open Space Advisory Board. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.	1	20.04.060 B.
17359	7-20-2010	An Ordinance amending Title 13 (Streets, Sidewalks and Public Places), Chapter 13.24 (City Parks and Recreation Areas), Sections 13.24.010 B (Sales of Goods and Services) and 13.24.200 B 4 (Parks and Recreation Facility Use and Fee Authorization), of the El Paso City Code, to authorize the conduct of rummage sales at the senior centers; the penalty being as provided in Sections 1.08.010 - 1.08.030 of the El Paso City Code.	1	13.24.010 B.
			2	13.24.200 B.4.
17360	7-20-2010	An Ordinance to amend Title 20 (Zoning), Chapters 20.02 (General Provisions and Definitions) and 20.10 (Supplemental Use Regulations), Sections 20.02.414 and 20.10.750 regarding yard, garage or rummage sales to include outdoor sales conducted in City parks and at places of public assembly; to establish requirements for such sales; and to add Section 20.02.719 to define place of public assembly; the penalty being as provided in Section 20.24.020 of the El Paso City Code.	1	20.02.414
			2	20.10.750
			3 Added	20.02.719
17361	7-20-2010	An Ordinance to amend Title 13 (Streets, Sidewalks and Public Places), to amend Section 13.20.040 C (Selling Merchandise Prohibited on and near the Public Right-of-Way) to delete an inapplicable provision regarding newspaper stands, and to clarify that the exemption for yard, garage and rummage sales applies to all such sales as permitted under the zoning code: the penalty being as provided in Sections 1.08.010 - 1.08.030 of the El Paso City Code.	1	13.20.040 C.
17362	7-27-2010	An Ordinance amending Title 15 (Public Services) Chapter 15.08 (Street Rentals) Section 15.08.120 (Special Privilege Licenses), Subsection G, (Exceptions), of the El Paso City Code to add an exception for certain signs on the city's parkway. The penalty being as provided in Chapter 1.08, General Penalty, of the El Paso City Code.	1 Added	15.08.120 G.11.
17363	7-27-2010	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.041 (Schedule IVA - Parking Prohibited during certain hours- School Days Only) of the El Paso City Code by adding the area of No Parking on Missy Yvette Drive to include both sides from Pellicano Drive to Ben Proctor Drive. The penalty being as provided in Section 12.84.010 (Violation - Penalty) of the El Paso City Code.	1	12.88.041 13.

Ordinance Number	Approval Date	Description	Section	Section this Code
17364	7-27-2010	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.40 (Size, Weight and Class Restrictions), Section 12.40.020 (Transportation Committee - established authority to revise and establish truck routes) by eliminating the Transportation Committee and requiring the Traffic Engineer to establish and revise truck routes subject to approval by City Council. The penalty being as provided in Chapter 12.84 (Violations - Penalty) of the El Paso City Code.	1	12.40.020
			2	12.40.090 A.
17365	7-27-2010	An Ordinance Amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.150 (Schedule XIV, Speed Limits) of the El Paso City Code by adding Lee Boulevard to Subsection F, thirty five miles per hour. The penalty being as provided in Section 12.84.010 (Violation - Penalty) of the El Paso City Code.	1 Added	12.88.150 F.94.
17366	7-27-2010	An Ordinance Amending Title 12 (Vehicles and Traffic), Chapter 12.44 (Stopping, Standing and Parking Generally), Section 12.44.020 (Where no signs required) of the El Paso City Code by adding "Designated bike lanes, unless official signs allow such parking during specific times". The penalty being as provided in Section 12.84.010 (Violation - Penalty) of the El Paso City Code.	1 Added	12.44.020 N.
17367	8- 3-2010	An Ordinance changing the zoning of Parcel 1: Lot 1, Block 1, Montecillo Unit One, City of El Paso, El Paso County, Texas from C-3/C (Commercial/Conditions) and C-3 (Commercial) to G-MU/C (General Mixed Use/Conditions) and G-MU (General Mixed Use); and, Parcel 2: Lot 1, Block 2, Montecillo Unit Two, City of El Paso, El Paso County, Texas from C-3/C (Commercial/Conditions) to G-MU/C (General Mixed Use/Conditions). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17368	8-10-2010	An Ordinance amending the 2025 Proposed Thoroughfare System as detailed in the Map Atlas of the Plan for El Paso and its related documents as originally approved by El Paso City Council in 1999, and as subsequently amended, to delete the proposed Berringer Street, as a Collector arterial, north of Artcraft Road and south of the proposed extension of Isela Rubalcava Street.		Omitted
17369	8-10-2010	An Ordinance amending Title 12 (Vehicles and Traffic) Chapter 12.88 (Schedules), Section 12.88.030 (Schedule III - Parking prohibited at all times on certain streets) of the El Paso City Code by adding Sundance Avenue from Menlo Avenue to a point 340 feet north thereof, east side only. The penalty being as provided in Section 12.84.010 (Violation - Penalty) of the El Paso City Code.	1 Added	12.88.030 448.
17370	8-17-2010	An Ordinance granting Special Permit No. ZON10-00038, to allow for a Parking Reduction on the property described as south 1/2 of Lot 1, Block 4, Beaumont Addition, City of El Paso, El Paso County, Texas, Pursuant to Section 20.64.175 of the El Paso City Code. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17371	8-17-2010	An Ordinance granting Special Permit No. ZON10-00035, to allow for infill development and a 100% parking reduction on the property described as the south half of Lots 1 and 2 and all of Lots 3-6, Block 8, East El Paso Addition, City of El Paso, El Paso County, Texas, pursuant to Section 20.14.070 Parking Reduction and 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17372	8-17-2010	An Ordinance vacating a portion of Crosby Street (70' Right-of-Way), fronting Lot 11, Block 48, Lot 10 and Lot 11, Block 49, Lot 1 and Lot 20, Block 53, Lot 20, Block 54, Alexander Addition, an Addition to the City of El Paso, El Paso County, Texas.		Omitted
17373	8-17-2010	An Ordinance vacating a portion of Randolph Drive, Alexander Addition, an addition to the City of El Paso, El Paso County, Texas.		Omitted
17374	8-17-2010	An Ordinance changing the zoning of Parcel 1: Lot 1, Block 1, Montecillo Unit One, City of El Paso, El Paso County, Texas from C-3/C (Commercial/conditions) and C-3 (Commercial) to G-MU/C (General Mixed Use/conditions) and G-MU (General Mixed Use); and, Parcel 2: Lot 1, Block 2, Montecillo Unit Two, City of El Paso, El Paso County, Texas from C-3/C (Commercial/conditions) to G-MU/C (General Mixed Use/conditions). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17375	8-24-2010	An Ordinance amending Title 18 (Building and Construction), to add Chapter 18.40 (Vacant Buildings), of the El Paso City Code, to provide requirements, procedures and fees for the registration and inspection of vacant buildings in the City; to define terms; to provide defenses, an appeal process, and insurance requirements; to provide for the revocation of a certificate of occupancy; to require emergency information signage on vacant buildings; to provide a severability clause; and to create a penalty, the penalty being as provided in Section 18.40.130 (Penalty) of the El Paso City Code.	2—15 Added	18.40.010—18.40.140
17376	8-24-2010	An Ordinance adopting the 2009 Edition of the International Property Maintenance Code and amending Title 18 (Building and Construction), Chapter 18.50 (Property Maintenance Code), of the El Paso City Code, to provide for local amendments to the 2009 International Property Maintenance Code, the penalty being as provided in Section 18.02.107 (Violations and Penalties) of the El Paso City Code.	2 Rpld	18.50.010—18.50.110
			Added	18.50.010—18.50.170
17377	8-24-2010	An Ordinance amending Title 2 (Administration and Personnel), Chapter 2.38 (Building and Standards Commission), of the El Paso City Code, to revise the powers of the Commission to hear appeals filed pursuant to Chapter 18.40 of the City Code relating to Vacant Building Registration and Requirements.	1	2.38.070
17378	8-24-2010	An Ordinance amending Title 21, Smart Code, Chapter 21.30 (New Community Plans) and Chapter 21.50 (Building Scale Plans), and Chapter 21.80 (Tables), of the El Paso City Code to add Airport Special Districts and Standards for those districts to include Sequence of Community Design, Community Types, Civic Zones, Thoroughfare Standards, Density Calculations, Building Scale Plans, Building Configuration, Building Function, Parking and Density Calculations and Disposition, Parking Location Standards, Landscape Standards, Signage Standards, and Architectural Standards. The penalty as provided in Section 21.60 of the El Paso City Code.	1 Added	21.30.010 G.
			Added	21.30.020 H., I.
			Added	21.30.030 E.—G.
			Added	21.30.050 E.
			Added	21.30.060 C.—E.
				21.30.070 A.5.

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				21.30.070 A.10.
				21.30.070 C.1.
				21.30.080 A.
				21.30.080 D.
				21.30.090 A.
			2	21.50.030 A.1., 2.
				21.50.060
				21.50.070 A.
				21.50.070 D.
				21.50.070 E.
			Added	21.50.070 F., G.
				21.50.080 A.
				21.50.080 D.
				21.50.090 B.
				21.50.100 A.
				21.50.100 C.—E.

Ordinance Number	Approval Date	Description	Section	Section this Code
				21.50.110 A., B.
				21.50.110 D., E.
				21.50.110 F.—L.
				21.50.120 A.
				21.50.120 C.—E.
				21.50.140
			3(Exh. A)	21.80.070
			3(Exh. B)	21.80.220 Table 16
17379	8-24-2010	An Ordinance authorizing the City Manager to execute a quitclaim (tax resale) deed conveying all right, title and interest in real property located at 418 San Pablo Pl. to Edmundo A. Lewis, in accordance with Section 34.05(H) of the Tax Code.		Omitted
17380	8-24-2010	An Ordinance amending Title 9 (Health and Safety), Chapter 9.04 (Solid Waste Management) in its entirety relating to all provisions including Solid Waste and Recyclables Storage and Collections, including commercial recyclables; Distribution of handbills, weeds and vegetation; and storage and disposition of construction or demolition waste; to clarify waste haulers requirements; to define terms; to add City emergency powers; to add flow control for municipal solid waste and franchising requirements; to add litter and shopping cart control requirements for retail and service establishments; to clarify the establishment and charging of fees; and to clarify enforcement officials and procedures. The penalty being as provided in Section 9.04.630 of the El Paso City Code.	1	9.04.010—9.04.967
17381	8-24-2010	An Ordinance setting the fee structure for the Fire Department Medical Services System; the penalty being as provided in Section 9.52.030 of the El Paso City Code.		Omitted
17382	8-24-2010	An Ordinance to standardize the eligibility age for senior fee discounts in the City of El Paso Quality of Life Departments to the age of 60 years, amending Chapter 2.40 (Department of Museums and Cultural Affairs, Section 2.40.020 (Fees) and Chapter 13.24 (City Parks and Recreation Areas) Section 13.24.200(D)(5) Park and Recreation Facility Use and Fee Authorization of the El Paso City Code.	1	2.40.020 A.
			2	13.24.200 D.5.
17383	8-24-2010	An Ordinance amending Title 2 (Administration and Personnel), to amend Chapter 2.110 (City Organizational Structure) in its entirety; to revise the structure of the department known as the City Manager's Office; to assign the Risk Management Function to the Human Resources Department; to revise the duties of the General Services Department; and to delete duplicate provisions relating to departmental authorization.	2	2.110.010
			3	2.110.020
			4	2.110.030
			5	2.110.040
			6	2.110.050
			7 Rpld	2.110.060—2.110.100
17384	8-24-2010	An Ordinance amending Title 2 (Administration and Personnel), add Chapter 2.10 (Planning and Economic Development Department), and Sections thereunder, in the El Paso City Code, to create and establish the functions of the department known as the Planning and Economic Development Department.	1—3 Added	2.10.010, 2.10.020
17385	8-24-2010	An Ordinance amending Title 13 (Streets, Sidewalks and Public Places), to amend and rename Chapter 13.02 (Mobility Services), and Sections thereunder, in the El Paso City Code, to create and establish the functions of the department known as the Department of Transportation.	2	13.02.010
			3	13.02.020

Ordinance Number	Approval Date	Description	Section	Section this Code
17386	8-24-2010	An Ordinance amending Title 13 (Streets, Sidewalks and Public Places), to create Chapter 13.06 (Engineering and Construction Management Department), and Sections thereunder, in the El Paso City Code, to create and establish the functions of the department known as the Engineering and Construction Management Department.	1 Added	Ch. 13.06(tit.)
			2 Added	13.06.010
			3 Added	13.06.020
17387	8-24-2010	An Ordinance to amend Title 1 (General Provisions) Chapter 1.04 (General Provisions), to amend section 1.04.030 (Definitions and Rules of Construction), to add definitions for the terms "Established Fee", "Planning Official" and "Permit Official".	1	1.04.030
17388	8-24-2010	An Ordinance to amend the City Code to reflect departmental reorganization by amending Title 5 (Business Taxes, Licenses and Regulations) to amend various sections thereunder to reassign the duties of the Development Services Department and the staff; the penalty being as provided in Sections 5.08.180, 5.30.010, 5.32.160, 5.34.010, 5.44.270, 5.48.260, 5.54.160, 5.60.040, 5.72.120; 5.76.080, 5.84.250, 5.90.100, 5.100.100, 5.94.010, and 1.08.010 - 1.08.030 of the El Paso City Code.	1	5.04.030
			2	5.04.040
			3	5.04.050
			4	5.04.060 A.
			5	5.04.080
			6	5.08.020
			7	5.08.110
			8	5.08.120
			9	5.08.060
				5.08.080
				5.08.130
				5.08.150
				5.08.160
			10	5.12.040
				5.12.070
				5.12.080
				5.12.100
				5.12.120
			11	5.16.050
			12	5.16.040
				5.16.060
				5.16.080
			13	5.26.090
			14	5.20.060
			15	5.24.010
			16	5.30.010
			17	5.32.010
				5.32.030
				5.32.050
				5.32.060
				5.32.070
				5.32.080
				5.32.090
			18	5.32.040
			19	5.32.140
			20	5.32.150
			21	5.34.010
			22	5.36.030

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				5.36.060
			23	5.36.090
			24	5.44.040
			25	5.44.100
			26	5.44.260
			27	5.48.020
			28	5.48.050
			29	5.54.020
			30	5.60.020
			31	5.60.030
			32	5.72.020
				5.72.050
			33	5.76.020
			34	5.85.040
			35	5.84.050
			36	5.84.060
			37	5.84.070
				5.84.080
				5.84.130
			38	5.88.020
				5.88.030
				5.88.040
				5.88.050
				5.88.060
			39	5.90.020
			40	5.90.020
			41	5.90.030
			42	5.94.010
			43	5.94.010
			44	5.94.010 B.11.
			45	5.96.010
			46	5.100.030
				5.100.040
				5.100.050
				5.100.090
			47	5.100.080
			48	5.100.090 E.
			49	5.104.020
				5.104.030
				5.104.060
				5.104.070
				5.104.080
			50	5.112.010
17389	8-24-2010	An Ordinance to amend the City Code to reflect departmental reorganization by amending Title 17 (Housing) to amend various sections pertaining to the duties which had been assigned to the Development Services Department and the staff; the penalty being as provided in Sections 17.04.080 and 1.08.010 - 1.08.030 of the El Paso City Code.	1	17.04.070
			2	17.08.220
			3	17.12.030
			4	17.12.050
			5	17.12.090
			6	17.12.140

Ordinance Number	Approval Date	Description	Section	Section this Code
17390	8-24-2010	An Ordinance to amend the City Code to reflect departmental reorganization by amending Title 18 (Building and Construction) to amend Sections thereunder pertaining to the duties which had been assigned to the Development Services Department and staff; to delete Section 18.02.110 regarding displays in city facilities; and to delete Chapter 18.48 (Projection Booths); the penalty being as provided in Sections 18.02.107, 18.8.400, 18.21.360, 18.36.040, 18.44.240, 18.46.180, and as provided in the Technical Codes of the El Paso City Code.	1	18.02.101.4
			2	18.02.101.4.1
			3	18.02.101.4.2
			4	18.02.101.4.3
				18.02.101.4.4
			5	18.02.101.4.5
			6	18.02.101.4.6
			7	18.02.102.1
			8	18.02.102.9
			9	18.02.102.10
			10	18.02.103.1.1
				18.02.103.1.1.4
				18.02.103.1.1.4.1
				18.02.103.1.1.7
				18.02.103.4.3.3
				18.02.103.4.3.4
				18.02.103.4.3.7
				18.02.103.9.3.5
			11	18.02.103.4.3.6
			12	18.02.103.8.7.1
			13	18.02.103.9.5
			14	18.02.103.10.2
			15	18.02.108.2.9
				18.02.108.3.1
				18.02.108.3.5
				18.02.108.4.1
				18.02.108.4.4
				18.02.108.5.2
			16	18.02.109.1.1.5
			17	18.02.109.1.6
			18 Rpld	18.02.110
			19	18.08.090
			20	18.08.170
			21	18.10.060
			22	18.18.060
			23	18.20.070
			24	18.21.060
			25	18.44.030
				18.44.050
				18.44.080
				18.44.090
				18.44.110
				18.44.130
				18.44.140
				18.44.160
				18.44.190
				18.44.220
			26 Rpld	18.44.040 D.
			27	18.44.060

Ordinance Number	Approval Date	Description	Section	Section this Code
			28	18.44.100
			29	18.44.170
			30	18.44.180
			31	18.44.200
			32	18.44.210 A.
			33	18.46.050
			34	18.46.100 B.
			35	18.46.160
			36 Rpld	18.48.010—18.48.040
			37	18.60.150 K., L.
			38	18.60.160
			39	18.60.170
			40	18.60.180
17391	8-24-2010	An Ordinance to amend the City Code to reflect departmental reorganization by amending Title 13 (Streets, Sidewalks and Public Places) to amend various sections thereunder pertaining to the duties which had been assigned to the Development Services Department, the Engineering Department, the Street Department, the Economic Development Department, and the staff. The penalty being as provided in Sections 13.08.180, 13.12.260, 13.20.040, and 1.08.010 - 1.08.030 of the El Paso City Code.	1	13.04.010
			2	13.04.015 A.
			3	13.04.045
			4	13.04.050 A., B.
			5	13.04.070
			6	13.08.020
			7	13.08.030
				13.08.050
				13.08.060
				13.08.070
				13.08.080
				13.08.130
			8	13.08.175
			9	13.12.020
				13.12.040
				13.12.080
				13.12.095
				13.12.170
			10	13.16.010
			11	13.20.040 A.1.
				13.20.040 A.6.
				13.20.040 D.
			12	13.30.040
17392	8-24-2010	An Ordinance to amend the City Code to reflect departmental reorganization by amending Title 9 (Health and Safety) to amend various sections to reassign duties which had been assigned to the Development Services Department, the Street Department and the Engineering Department, and the staff; the penalty being as provided in Sections 9.12.890, 9.32.150, 9.40.140, 9.48.260, 9.50.130, 1.08.010 - 1.08.030, and throughout Chapter 9.52 of the El Paso City Code.	1	9.11.010
			2	9.12.040
			3	9.12.580
			4	9.32.030 A., B.
			5	9.32.040 A.
			6	9.48.030
				9.48.250

Ordinance Number	Approval Date	Description	Section	Section this Code
				9.48.255
			7	9.40.010 3.
			8	9.50.110
17393	8-24-2010	An Ordinance to amend the City Code to reflect departmental reorganization by amending Title 15 (Public Services) to amend various sections thereunder relating to duties which had been assigned to the Development Services Department, the Engineering Department, and the Street Department, and the staff; the penalty being as provided in Sections 15.08.125 and 1.08.010 - 1.08.030 of the El Paso City Code.	1	15.08.120
			2	15.08.120 I.2.g.
			3	15.08.120 J.3.d.
			4	15.08.012
			5	15.08.120 K.1.b.(6)
			6	15.08.120 K.1.b.(22)
			7	15.12.030
				15.12.040
				15.12.050
			8	15.12.055
			9	15.13.030 B., C.
			10	15.13.040
			11	15.20.030
			12	15.20.030
			13	15.20.100
			14	15.20.110
17394	8-24-2010	An Ordinance to amend the City Code to reflect departmental reorganization by amending Title 12 (Vehicles and Traffic) to amend Sections thereunder pertaining to the duties which had been assigned to the Development Services Department and staff, and the definition of the Traffic Engineer; the penalty being as provided in Section 12.84.010 of the El Paso City Code.	1	12.04.190
			2	12.20.180
			3	12.20.190 A.—C.
			4	12.20.200
			5	12.20.210
			6	12.26.050
			7	12.28.020
			8	12.44.170
			9	12.44.190 C.
			10	12.64.010
				12.64.020
				12.64.040
17395	8-24-2010	An Ordinance to amend the City Code to reflect departmental reorganization pertaining to the duties assigned to the Development Services Department and the Economic Development Department and staff by amending Titles 2 (Administration and Personnel) and 3 (Revenue and Finance) to amend various sections to reflect the name change for these departments and the reassignment of duties; the penalty being as provided in sections 1.08.010 - 1.08.030 of the El Paso City Code.	1	2.20.050 A.
			2	3.04.035 A.8.
17396	8-24-2010	An Ordinance to amend the City Code to reflect departmental reorganization by amending Title 19 (Subdivisions), to amend various sections thereunder pertaining to the duties that had been assigned to the Development Services Department, and staff; the penalty being as provided in Section 19.42.070 of the El Paso City Code.	1	19.01.010
				19.01.050

Ordinance Number	Approval Date	Description	Section	Section this Code
			2	19.01.060
			3	19.02.020
			4	19.03.020
			5	19.04.010
			6	19.04.020
			7	19.06.020
			8	19.07.040
			9	19.08.010
			10	19.10.020
			11	19.11.040
			12	19.15.040
			13	19.15.140
			14	19.20.020
			15	19.20.040
			16	19.20.070
			17	19.20.080
			18	19.20.100
			19	19.24.030
			20	19.26.020
			21	19.26.040
			22	19.31.010
			23	19.31.020
			24	19.31.030
			25	19.31.060
			26	19.37.060
			27	19.37.140
			28	19.42.010
			29	19.42.010
			30	19.46.040
			31	19.47.030
			32—34	19.50.030
17397	8-24-2010	An Ordinance to amend the City Code to reflect departmental reorganization by amending Title 6 (Vehicles for Hire) to amend Section 6.40.110 (Personnel, Vehicles and Equipment - Standards and Requirements) to reassign the duties of the Development Services Department and the staff; the penalty being as provided in Section 6.40.130 of the El Paso City Code.	1	6.40.110 E.
17398	9- 1-2010	An Ordinance to amend the City Code to reflect departmental reorganization by amending Title 2 (Administration and Personnel) to amend various chapters pertaining to the duties which had been assigned to the Development Services Department and the staff; the penalty being as provided in Sections 1.08.010 - 1.08.030 of the El Paso City Code.	1	2.16.050 K.2.
			2	2.16.060 A.
			3	2.30.050

Ordinance Number	Approval Date	Description	Section	Section this Code
			4	2.30.060 C.
			5	2.38.020 D.
			6	2.80.010 D.1.
			7	2.102.050 A.
			8	2.102.060
17399	8-24-2010	An Ordinance levying FY 2011 taxes.		Omitted
17400	8-31-2010	An Ordinance changing the zoning of Tract 2, Block 37, Ysleta Grant, City of El Paso, El Paso County, Texas from A-O/C (Apartment-Office/Condition) to C-1/C (Commercial/Condition), and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17401	8-31-2010	An Ordinance amending the 2025 Proposed Thoroughfare System as detailed in the Map Atlas of The Plan for El Paso and its related documents as originally approved by El Paso City Council in 1999, and as subsequently amended, to downgrade Emerald Park Drive, from a minor arterial to a collector arterial, north of the proposed extension of Mark Twain Avenue and south of Eastlake Boulevard.		Omitted
17402	8-31-2010	An Ordinance Amending Chapter 13.24 (City Parks and Recreation Areas) Section 13.24.200 Park and Recreation Facility Use and Fee Authorization, Subsection (D)(6) (Multiple Child Discount) of the El Paso City Code and Adding Subsection (E) (Needs Assessment Scholarship Program) to the El Paso City Code to Broaden the Applicability of the Multiple Child Discount and to provide authorization for a Needs Assessment Scholarship Program.	1	13.24.200 D.6.
			2 Added	13.24.200 E.
17403	9-14-2010	An Ordinance changing the zoning of Tract 5, McElroy Acres, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) to R-2 (Residential). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17404	9-14-2010	An Ordinance changing the zoning of a portion of Tract 8J, Block 42, Ysleta Grant, City of El Paso, El Paso County, Texas from R-4 (Residential) to S-D (Special Development), and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17405	9-14-2010	An Ordinance granting a special privilege permitting Big Boy Ice Cream, Inc. to encroach onto a portion of various public rights-of-way with food-vending concessions in the downtown area.		Omitted
17406	9-14-2010	An Ordinance authorizing the City Manager to terminate all special privilege licenses issued pursuant Ordinance 16013 to food vendors licensed to operate in the public right-of-way in the downtown area.		Omitted
17407	9-21-2010	An Ordinance authorizing the issuance of "City of El Paso, Texas, Water And Sewer Revenue Refunding Bonds, Series 2010A;" and resolving matters which are necessary to effectuate said issuance, including the delegation of matters relating to the sale and issuance of the Bonds to an authorized City officer or employee within certain specified parameters.		Omitted
17408	9-21-2010	An Ordinance changing the zoning of Tract 8, Section 16, Block 80, Township 1, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) to M-1 (Light Manufacturing), and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17409	9-21-2010	An Ordinance changing the zoning of Parcel A - A 1.451 acre portion of Tract 1B4, Nellie D. Mundy Survey 242, City of El Paso, El Paso County, Texas (Zone C-1/C, Parcel 5 in Ordinance 15672); Parcel B - 2.158 acre portion of Tract 1B4, Nellie D. Mundy Survey 242, City of El Paso, El Paso County, Texas (Zone C-3/C Parcel 6 in Ordinance 15672); Parcel C - An 11.283-acre portion of Tract 1B4, Nellie D. Mundy Survey 242, City of El Paso, El Paso County, Texas (Zone R-3A/C, Parcel 7 in Ordinance 15672) from C-1/C (Commercial/Conditions, C-3/C (Commercial/Conditions) and R-3A/C (Residential/Conditions) to A-O/C (Apartment-Office/Conditions) and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17410	9-21-2010	An Ordinance amending Ordinance No. 016528 to allow for three consecutive two-year terms of office for board members of the board of directors of the Tax Increment Reinvestment Zone Number Five, City of El Paso, Texas.		Omitted
17411	9-21-2010	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.150 (Schedule XIV, Speed Limits) of the El Paso City Code by adding Angora Loop south from Dyer Street to Railroad Drive to Subsection G, forty miles per hour; the penalty being as provided in Section 12.84.010 (Violation—Penalty) of the El Paso City Code.	1 Added	12.88.150 G.45.
17412	9-21-2010	An Ordinance amending Title 18 (Building and Construction), Chapter 18.02 (Building and Construction Administrative Code) Sections 18.02.103.1.1.6 (Prerequisite to Issuance of Permits) and 18.02.103.9.1.2.1 (Prerequisite to Issuance of Certificate of Occupancy), of the El Paso City Code, to amend the requirements for issuance of conditional building permits and certificates of occupancy for lots with conditional building permits, the penalty being as provided in Section 18.02.107 (Violations and Penalties) of the El Paso City Code.	1	18.02.103.1.1.6.1
			2	18.02.103.1.1.6.2
			3	18.02.103.9.1.2.1.1
			4	18.02.103.0.12.1.1
			5	18.02.103.0.1.2.1.3
			6	18.02.103.9.1.2.1.4
17413	9-21-2010	An Ordinance amending Title 18 (Building and Construction), Chapter 18.02 (Building and Construction Administrative Code) of the El Paso City Code, by repealing Chapter 18.02 in its entirety and adopting a new Chapter 18.02 in its place, the penalty being as provided in Section 18.02.107 (Violations and Penalties) of the El Paso City Code.	A Rpld	18.02.101—18.02.110
			Added	18.02.101—18.02.110
17414	9-21-2010	An Ordinance adopting the 2009 edition of the International Building Code and amending Title 18 (Building and Construction), Chapter 18.08 (Building Code), of the El Paso City Code, to provide for local amendments to the 2009 International Building Code, the penalty being as provided in Section 18.02.107 (Violations and Penalties) of the El Paso City Code.	B Rpld	18.08.010—18.08.330
			Added	18.08.010—18.08.290

Ordinance Number	Approval Date	Description	Section	Section this Code
17415	9-21-2010	An Ordinance adopting the 2009 edition of the International Residential Code and amending Title 18 (Building and Construction), Chapter 18.10 (Residential Code), of the El Paso City Code, to provide for local amendments to the 2009 International Residential Code, the penalty being as provided in Section 18.02.107 (Violations and Penalties) of the El Paso City Code.	B Rpld	18.10.010—18.10.350
			Added	18.10.010—18.10.390
17416	9-21-2010	An Ordinance adopting the 2009 edition of the International Mechanical Code and amending Title 18 (Building and Construction), Chapter 18.12 (Mechanical Code), of the El Paso City Code, to provide for local amendments to the 2009 International Mechanical Code, the penalty being as provided in Section 18.02.107 (Violations and Penalties) of the El Paso City Code.	B	18.12.010—18.12.100
17417	9-21-2010	An Ordinance adopting the 2008 edition of the National Electrical Code and amending Title 18 (Building and Construction), Chapter 18.16 (Electrical Code), of the El Paso City Code, to provide for local amendments to the 2008 National Electrical Code, the penalty being as provided in Section 18.02.107 (Violations and Penalties) of the El Paso City Code.	B	18.16.010—18.16.310
17418	9-21-2010	An Ordinance adopting the 2009 edition of the International Plumbing Code and amending Title 18 (Building and Construction), Chapter 18.20 (Plumbing Code), of the El Paso City Code, to provide for local amendments to the 2009 International Plumbing Code, the penalty being as provided in Section 18.02.107 (Violations and Penalties) of the El Paso City Code.	B	18.20.010—18.20.320
17419	9-21-2010	An Ordinance adopting the 2009 edition of the International Fuel Gas Code and amending Title 18 (Building and Construction), Chapter 18.24 (Gas Code), of the El Paso City Code, to provide for local amendments to the 2009 International Fuel Gas Code, the penalty being as provided in Section 18.02.107 (Violations and Penalties) of the El Paso City Code.	B Rpld	18.24.010—18.24.150
			Added	18.24.010—18.24.120
17420	9-21-2010	An Ordinance adopting the 2009 edition of the International Existing Building Code and amending Title 18 (Building and Construction), Chapter 18.28 (Existing Building Code), of the El Paso City Code, to provide for local amendments to the 2009 International Existing Building Code, the penalty being as provided in Section 18.02.107 (Violations Penalties) of the El Paso City Code.	B Rpld	18.28.010—18.28.080
			Added	18.28.010—18.28.050
17421	9-21-2010	An Ordinance amending Title 18 (Building and Construction), Chapter 18.46 (Landscape), of the El Paso City Code, to provide additional definitions, clarify the landscape requirements for parking lots, lower the percentage of plants required from the plant list, and add an exemption to the landscape requirements, the penalty being as provided in Section 18.46.180 (Violations Penalties) of the El Paso City Code.	1	18.46.050
			2	18.46.060 A.1.
			3	18.46.060 A.2.a.
			4	18.46.060 A.3.
			5	18.46.060 B.8., 9.

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			6	18.46.080 A.
			7	18.46.080 A.1.e.
			8	18.46.090 A.1.d.
			9	18.46.100 B.
			10 Added	18.46.100 F.4.
17422	9-21-2010	An Ordinance adopting the 2009 edition of the International Energy Conservation Code and amending Title 18 (Building and Construction), to add Chapter 18.70 (Energy Conservation Code), to the El Paso City Code, the penalty being as provided in Section 18.02.107 (Violations and Penalties) of the El Paso City Code.	B Added	18.70.010, 18.70.020
17423	9-21-2010	An Ordinance adopting the 2009 edition of the International Fire Code and amending Title 9 (Health and Safety), Chapter 9.52 (Fire Prevention Code), of the El Paso City Code, to provide for local amendments to the 2009 International Fire Code, the penalty being as provided in Section 9.52.030.19 (Violations and Penalties) of the El Paso City Code.		9.52.010—9.52.240
17424	9-21-2010	An Ordinance amending Title 2 (Administration and Personnel), Chapter 2.40 (Department of Museums and Cultural Affairs), Section 2.40.030 (Advisory Board - Created - Members - Appointment), Section 2.40.040 (Advisory Board - Members - Terms), 2.40.050 (Advisory Board - Officers and Quorum), 2.40.060 (Art Museum Advisory Board - Duties), 2.40.070 (Cultural Affairs Advisory Board - Duties), 2.40.080 (Museum of History Advisory Board), and 2.40.090 (Museum of Archaeology Advisory Board) of the El Paso City Code to sunset the current boards and to create a central board for the Museums and Cultural Affairs Department to be called the Museums and Cultural Affairs Advisory Board; to codify and clarify the Ordinances creating the Public Art Program and the Public Art Committee and to repeal Ordinances Nos. 16324 and 17165.	1	2.40.030—2.40.080
			Rpld	2.40.090
17425	10- 5-2010	An Ordinance releasing conditions placed on property by Ordinance No. 3764 which changed the zoning on a portion of Lots 1 thru 4, Block O-3, Moellers Addition, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17426	10- 5-2010	An Ordinance changing the zoning of Lot 1, Block 1, BBA Subdivision, City of El Paso, El Paso County, Texas from R-1 (Residential) to R-2 (Residential). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17427	10- 5-2010	An Ordinance amending Title 3 (Revenue and Finance), Chapter 3.04 (Property Taxes), 3.04.035 (Exemption - Historically Significant Sites) of the El Paso City Code to allow for an exception for a specified period of years on the City's portion of property taxes on historically significant properties that are renovated.	1	3.04.035 D.1.

Ordinance Number	Approval Date	Description	Section	Section this Code
17428	10- 5-2010	An Ordinance amending Title 7 (Animals), Chapters 7.04 (Definitions), 7.12 (Dogs and Cats), 7.16 (Impoundment), and 7.24 (Livestock); and to Create Chapter 7.14 (Animal Sales, Breeding and Shows); to define terms; to clarify fees and revise regulations applying to spayed, neutered, unspayed and unneutered dogs and cats; to revise permitting procedures; to provide for the services of animal welfare organizations; to regulate the sale of many dogs and cats, and the sale and transfer of all dogs and cats younger than eight weeks of age; to require that a litter permit number be displayed in any advertisement to sell or transfer puppies and kittens; to require animals released by the city and animal welfare organizations be spayed or neutered; and to provide for the reporting of euthanized animals in the city; the penalty being as provided in Section 7.04.080 of the El Paso City Code.	1	7.04.010
			2	7.04.040
			3 Added	7.04.110
			4 Added	7.04.120
			5	7.12.020
			6	7.12.030 E.
			7 Added	Ch. 7.14(tit.)
			8 Added	7.14.010
			9 Added	7.14.020
			10 Added	7.14.030
			11 Added	7.14.040
			12 Added	7.14.050
			13 Added	7.14.060
			14 Added	7.14.070
			15 Added	7.14.080
			16 Added	7.14.090
			17	7.16.020
			18	7.16.030
			19	Ch. 7.24(tit.)
			20	7.24.010
			21	7.24.020
			22	7.24.050
			23	7.24.060
			24	7.24.070
			25	7.24.080
			26 Rpld	7.24.090—7.24.130
17429	10-12-2010	An Ordinance authorizing the city of El Paso to sell lots, 2, 4, 5, 7, 9, 11, 13, and 14, Block 9, lots 1, 3, 4, 6, 7, 8, 9, 11, and 14, Block 10, lots 1, 3, 5, 7, 9, 10, 11, 13, and 14, Block 11, and lots 2, 4, 6 and 9, Block 12, Summerlin an addition to the City of El Paso, El Paso County, Texas to Tierra Del Sol Housing Corporation, in accordance with Texas local government code Section 272.001(G).		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17430	10-19-2010	An Ordinance granting Special Permit No. ZON10-00058, to allow for a ground level helistop on the property described as Lot 2, Block 1, Del Sol Medical, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.320 of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17431	10-19-2010	An Ordinance releasing conditions placed on property by Ordinance No. 16065 which changed the zoning of a portion of Lot A, Block 179, Eastwood Heights Unit K, City of El Paso, El Paso County, Texas, and which imposed conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17432	10-19-2010	An Ordinance changing the zoning of Parcel of land out of the Original Survey from the Southern Pacific Railroad Reserve and out of Blocks 232, 233, 234, and 235 and the closed and vacated portions of the alleys within said Blocks and the closed and vacated portions of Franklin Street, Florence Street, Ochoa Street, and Virginia Street of Campbell's Addition to the City of El Paso, El Paso County, Texas from M-1/H (Light Manufacturing/Historic) to C-3/H (Commercial/Historic). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17433	10-19-2010	An Ordinance granting Special Permit No. ZON10-00062, to allow for infill development on the property described as Lots 6 to 8, Block 98, East El Paso Addition, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.320 of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17434	10-19-2010	An Ordinance amending a condition placed on property by Ordinance No. 15891 which changed the zoning of Tract 2 Block 1, Upper Valley Surveys, City of El Paso, El Paso County, Texas, and imposed conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17435	10-19-2010	An Ordinance amending Ordinance Numbers 010873, 012221, 012476, 012636, 014826, 015415, 015961, 016456, and 017125 which established operating procedures and set fees for Foreign-Trade Zone No. 68; to incorporate updates for clarification purposes and to allow for an Air Cargo Perishable Goods Project, and to allow the revisions to Zone Schedule No. 1, Rates, Rules Charges and Regulations applying at Foreign Trade Zone No. 68, El Paso, Texas (The Tariff).		Omitted
17436	10-19-2010	An Ordinance granting a special privilege license to Union Valet LLC for the use of portions of City right-of-way on San Francisco Street to install a removable valet parking stand and to use the two (2) existing dedicated loading zones on San Francisco Street for vehicle drop off and pick up zones for valet parking within the Union Plaza Entertainment District.		Omitted
17437	10-19-2010	An Ordinance granting a special privilege to Hotel Don Quixote, LTD. doing business as Doubletree Hotel El Paso Downtown/City Center, permitting the encroachment of two (2) awnings and two (2) outdoor patio cafes onto portions of City right-of-way located at 600 North El Paso Street and allowing the sale and service of alcoholic beverages as a permissible activity within the outdoor patio cafe area.		Omitted
17438	10-19-2010	An Ordinance amending Ordinance No. 012393 which granted a special privilege to the El Paso Electric Company, owner, and El Paso Parking Inc., Lessee, to permit off-street parking within a portion of Rim Road right-of-way, by extending the term five years, and revising the consideration, notification and indemnification provisions.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17439	10-26-2010	An Ordinance granting Special Permit No. ZON10-00060, to allow for infill development and a 100% parking reduction on the property described as a portion of Block 38, Clardy-Fox Subdivision Unit 5, City of El Paso, El Paso County, Texas, pursuant to Section 20.14.070 Parking Reduction and 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code.		Omitted
17440	10-26-2010	An Ordinance granting Special Permit No. ZON10-00047, to allow for infill development on the property described as Lots 9-12, Block 17, Franklin Heights Addition, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.320 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code.		Omitted
17441	10-26-2010	An Ordinance to amend the City Code to reflect departmental reorganization by amending Title 21 (Smart Code), to amend various sections thereunder pertaining to the duties that had been assigned to the Development Services Department and the staff; the penalty being as provided in Sections 21.60.010 - 21.60.030 of the El Paso City Code.	1	21.30.010 E.
			2	21.40.010
			3	21.40.050
			4, 5	21.70.010
17442	10-26-2010	An Ordinance to amend the City Code to reflect departmental reorganization by amending Title 20 (Zoning) to amend various sections thereunder pertaining to the duties that had been assigned to the Development Services Department and to staff; the penalty being as provided in Section 20.24.020 of the El Paso City Code.	1 Rpld	20.02.0334
			2 Rpld	20.02.298
			3	20.02.1174
			4	20.04.010
			5	20.04.060
			6	20.04.070
			7	20.04.080
			8	20.04.200 B.2.a.—c.
			20.04.200 C.2.	
			9	20.03.320 E.
			10	20.04.370 A.
			11	200.04.400 A.
			12	20.04.520 B.2.c.i.
				20.04.520 B.2.c.iii.
			13	20.04.560
			14	20.04.610
			15	20.04.700 B.
			16	20.04.820
			17	20.04.900
			18	20.06.030 A.
			19	20.10.270 D.

Ordinance Number	Approval Date	Description	Section	Section this Code
			20	20.10.360 B.3.—5.
			21	20.10.365 B.
				20.10.600 A.
				20.10.680 E.
			22	20.10.385
			23	20.10.400 D.—F.
			24	20.10.430 B.
			25	20.10.455 B., C.
				20.10.455 D.3.e.iii.
				20.10.455 E.3.e.iii.
			26	20.10.510 B.3.
				20.10.510 E.7.
			27	20.10.510 H.
			28	20.10.550 E.
			29	20.10.700
			30	20.10.600 A.
			31	20.10.680
			32	20.14.040 D., E.
				20.14.040 G.
			33	20.14.050 A.
			34	20.14.060 A., C.
			35	20.14.070 C.3.
				20.14.070 D.3.
			36	20.14.080
			37	20.14.090
			38	20.14.140
			39	20.14.180 C.
			40	20.14.210 D.
			41	20.16.020 C.
			42—44	20.18.050
			45	20.18.100 C.
			46	20.18.110
			47	20.18.200
			48	20.18.210
			49	20.18.300
			50	20.20.020 A.2.
			51	20.20.120 C.
			52	20.22.060 A.
			53	20.22.070 A.
			54	Tit. 20, App. C

Ordinance Number	Approval Date	Description	Section	Section this Code
17443	11- 2-2010	An Ordinance authorizing the issuance of "City of El Paso, Texas, Combination Tax and Revenue Certificates of Obligation, Series 2010" and resolving matters which are necessary to effectuate said issuance, including a delegation of authority.		Omitted
17444	11- 2-2010	An Ordinance authorizing the issuance of "City of El Paso, Texas, General Obligation Refunding Bonds, Series 2010" and resolving matters which are necessary to effectuate said issuance, including a delegation of authority.		Omitted
17445	11- 2-2010	An Ordinance approving a detailed site development plan for all of Lot 1, Block 1, Sierra Crest, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.150. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17446	11- 2-2010	An Ordinance granting Special Permit No. ZON10-00051, to allow for infill development on the property described as a portion of Lot 3, Block 8, Lafayette Place, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17447	11- 2-2010	An Ordinance authorizing the City Manager of the City of El Paso to sign a Transportation Easement to convey to the State of Texas approximately 102.167 acres of land in the City of El Paso located in Sections 14, 15, 21, 22, 23, 28 and 29, Block 80, Township 2, Texas and Pacific Railway Company Surveys for use as part of the State of Texas Spur 601 controlled access highway construction project.		Omitted
17448	11- 2-2010	An Ordinance authorizing the City Manager of the City of El Paso to sign a Transportation Easement to convey to the State of Texas approximately 0.487 acre of land in the City of El Paso located in Section 17, Block 81, Township 2, Texas and Pacific Railway Company Surveys for use as part of the State of Texas Spur 601 controlled access highway construction project.		Omitted
17449	11- 2-2010	An Ordinance authorizing the City Manager of the City of El Paso to sign a Special Warranty Deed and any other documents necessary to convey to the State of Texas approximately 0.614 acre located in Section 17, Block 81, Township 2, Texas and Pacific Railway Company Surveys, El Paso County, Texas, adjacent to Fred Wilson Road, for the State of Texas Spur 601 controlled access highway construction project.		Omitted
17450	11- 2-2010	An Ordinance amending Ordinance 8065, Civil Service Rules and Regulations, amending Rule 2 providing for the extension of employees probationary period; Rule 5 relating to starting salaries; Rule 8 relating to the removal of an applicant from an eligible list for certain convictions; Rule 13, to allow vacation to be taken in one hour increments, and relating to reinstatement of former employees; Rule 15, relating to the removal of formal counseling documents from personnel file; and Rule 29 relating to the outside employment of part-time employees.		Omitted
17451	11- 2-2010	An Ordinance amending Ordinance 8064 (Classification and Compensation Plan) to amend Section 3.4D regarding the determination of the rate of pay for reclassified employees.		Omitted
17452	11- 9-2010	An Ordinance changing the zoning of Lot 17, 18, and the East 10 feet of Lot 19, Block 17, Cotton Addition, City of El Paso, El Paso County, Texas from A-2 (Apartment) to S-D (Special Development). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17453	11- 9-2010	An Ordinance granting Special Permit No. ZON10-00055, to allow for a 100% parking reduction on the property described as Lot 17, 18, and the East 10 feet of Lot 19, Block 17, Cotton Addition, City of El Paso, El Paso County, Texas, pursuant to Section 20.14.070 parking reduction of the EL Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17454	11- 9-2010	An Ordinance changing the zoning of Parcel 1: A portion of Lots 1 - 12, Gaal Subdivision, City of El Paso, El Paso County, Texas from R-4/sp (Residential/special permit) to A-O (Apartment-Office), Parcel 2: Tract 12, Block 43, Ysleta Grant Surveys, City of El Paso, El Paso County, Texas from R-F/sp (Ranch-Farm/special permit) to A-O (Apartment-Office), Parcel 3: A portion of Tract 15, Block 43, Ysleta Grant Surveys, City of El Paso, El Paso County, Texas from R-F (Ranch-Farm) to A-O (Apartment-Office), and Parcel 4: Tract 14-A & 16-C, Block 43, Ysleta Grant Surveys, City of El Paso, El Paso County, Texas from R-4 (Residential) to A-O (Apartment-Office); and repealing the special permits granted to Parcel 1 and Parcel 2. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17455	11- 9-2010	An Ordinance vacating the alley between Lots 22 and 23, Block 5, Map of Orchard Addition, City of El Paso, El Paso County, Texas.		Omitted
17456	11-10-2010	An Ordinance of the electorate of the City of El Paso adopted by operation of law pursuant to the initiative authority of Section 3.11 of the El Paso City Charter, endorsing traditional family values by making health benefits available only to city employees and their legal spouse and dependent children.		Omitted
17457	11-16-2010	An Ordinance providing for the reduction of planning and building construction permit fees for the construction or renovation of properties meeting the requirements of the City's Infill Development Incentive Policy, through August 31, 2015.		Omitted
17458	11-16-2010	An Ordinance releasing conditions placed by Ordinance No. 15672, which rezoned and imposed conditions, on the following real property described as: Parcel A: a 2.158 acre portion of Tract 1B4, Nellie D. Mundy Survey 242, City of El Paso, El Paso County, Texas Zoned C-3/c, (Commercial/Condition) identified as parcel 6 in Ordinance 15672 and rezoned to A-O/c (Apartment Office/Condition) by Ordinance 017409; and Parcel B: a 11.283 acre portion of Tract 1B4, Nellie D. Mundy Survey 242, City of El Paso, El Paso County, Texas Zoned R-3A/c, (Residential/Condition) identified as Parcel 7 in Ordinance 15672 and rezoned to A-O/c (Apartment Office/Condition) by Ordinance 017409. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17459	11-16-2010	An Ordinance granting to ONEOK WesTex Transmission, L.L.C., the right, privilege and franchise to construct, acquire, operate and maintain in certain portions of the City of El Paso, Texas, mains, systems and facilities for the purpose of transporting, delivering and selling natural gas within and through said municipality to customers inside, beyond and outside the limits of said municipality, and for such purposes to use the highways, streets, avenues, alleys, easements, bridges, parks and drainage facilities of said municipality for a period of 20 years.		Omitted
17460	11-16-2010	An Ordinance amending Ordinance No. 16090, which granted a franchise to El Paso Electric Company, to increase street rental charge.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17461	11-30-2010	An Ordinance amending Title 21 (SmartCode), Chapter 21.10 (General to All Plans), Section 21.10.040 (Process), of the El Paso City Code to clarify the application submittals. The penalty is as provided for in 21.60 of the El Paso City Code.	1	21.10.040 B.
17462	11-30-2010	An Ordinance changing the zoning of a portion of Tract 1A5, Section 45, Block 79, Township 2, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas from R-5/sp (Residential/special permit) to C-1 (Commercial); and repealing Ordinance No. 15601. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17463	11-30-2010	An Ordinance changing the zoning of all of Tracts 1N6 and 1N7, Block 10, Upper Valley Surveys, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) to R-2 (Residential) and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17464	11-30-2010	An Ordinance releasing all the conditions placed by Ordinance No. 9364, Ordinance No. 15708, Ordinance No. 011540, Ordinance No. 010052, Ordinance No.16241 and Resolution dated April 26, 1988, and Contract dated August 9, 1988, and Contract Amendment dated September 13, 1988 on the property abutting Transmountain Road between US Highway 54 and Interstate Highway 10, including All of Westport Unit Five, City of El Paso, El Paso County, Texas; Portions of Tracts 10A, 10B, Tract 10B4, 10C, 10D, 10E, 10E1, 12A, and all of Tracts 9, 10B3, and 11, Nellie D. Mundy Survey 239, City of El Paso, El Paso County, Texas; A portion of Tract 2, Nellie D. Mundy Survey 240, City of El Paso, El Paso County, Texas; Hoover Avenue and Northwestern Drive and all of Westport Unit Five, City of El Paso, El Paso County, Texas; Westport Unit Seven Amending Subdivision, City of El Paso, El Paso County, Texas; All of Lot 1A, Block 3, Westport Unit Three, City of El Paso, El Paso County, Texas; All of Lot 1, Block 3, Westport Unit Three, City of El Paso, El Paso County, Texas; A portion of Tracts 1A1, 1D, 2C, 2D, 2E and Resler Drive Right-of-Way, Nellie D. Mundy Survey 243, City of El Paso, El Paso County, Texas; and imposing new conditions on all the property. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17465	11-30-2010	An Ordinance amending Title 19 (Subdivisions), Appendix 111 (Mountain Area Defined), of the El Paso City Code to delete a portion of mountain area within the Mountain Development Area (MDA). The penalty is as provided for in Section 19.42 of the El Paso City Code.		Omitted
17466	12- 7-2010	An Ordinance adding a new section to Title 12 (Vehicles and Traffic), Chapter 12.80 (Miscellaneous Traffic Regulations) of the City Code relating to restrictions on operating a motor vehicle near vulnerable road users; the penalty being as provided in Section 12.84.010 of the El Paso City Code.	1 Added	12.80.220
17467	12- 7-2010	An Ordinance amending Ordinance No. 017413 and Title 18 (Building and Construction), Chapter 18.02 (Building and Construction Administrative Code), Section 18.02.103.9.5.3. (Signs), of the El Paso City Code, relating to the inspection requirements for Signs, the penalty being as provided in Section 18.02.107 (Violations and Penalties) of the El Paso City Code.	1	18.02.103.9.5.3
17468	12- 7-2010	An Ordinance vacating a drainage easement measuring 25 feet in width, located within a portion of Lot 16, Block 74, Sun Valley Addition #7, City of El Paso, El Paso County, Texas. SUB10-00244		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17469	12- 7-2010	An Ordinance vacating an access easement measuring 20 feet in width, located within a portion of Lot 16, Block 74, Sun Valley Addition #7, City of El Paso, El Paso County, Texas. SUB10-00245		Omitted
17470	12- 7-2010	An Ordinance changing the zoning of Lots 11 to 20, Block 59, Magoffin Addition, City of El Paso, El Paso County, Texas, be changed from A-3 (Apartment) to A-3/H (Apartment/Historic). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17471	12-21-2010	An Ordinance amending Title 9 (Health and Safety), Chapter 9.04 (Solid Waste Management), to clarify terms and definitions; to clarify overflowing carts in Section 9.04.100 (Location for Collection); to provide an exemption for commercial collection of compacted solid waste in Section 9.04.190 (Schedule for Collection); to clarify construction or demolition material placement in Section 9.04.260 (Accumulation and Storage); to clarify the manifest process in Section 9.04.280 (Manifest Requirement); to clarify roll-off collection in Section 9.04.300 (Schedule for Collection); to clarify hauler permit revocation in Section 9.04.480 (Suspension, Revocation of Hauler Permit; Appeals); to cap the sign and litter receptacle requirement in Section 9.04.910 (Litter Control); and to amend the effective date of the Franchise Agreement requirements; the penalty being as provided in Section 9.04.630 of the El Paso City Code.	1	9.04.020 3., 15.
				Ch. 9.04, Art. IV(tit.)
				9.04.270
				9.04.310, 9.04.320
				9.04.380
				9.04.500
				9.04.530
				9.04.680
			2	9.04.020 9., 10.
				9.04.020 56.
			3	9.04.100 A.4.
			4	9.04.190 A.
			5	9.04.250
			6	9.04.260
			7	9.04.280 A., b.
			8	9.04.290
			9	9.04.300
			10	9.04.350
			11	9.04.420 D.1.
			12	9.04.480 B.1.
			13	9.04.500 A.
			14	9.04.910 A., B.
			15	Ch. 9.04, Art. VII(note)
				Ch. 9.04, Art. VII-I(note)

Ordinance Number	Approval Date	Description	Section	Section this Code
17472	12-21-2010	An Ordinance changing the zoning of portion of Block 302, Pierce Finley Addition and a portion of Pierce Street and an alley adjacent to a portion of Block 302, Pierce Finley Addition, City of El Paso, El Paso County, Texas from R-5 (Residential) to A-O (Apartment/Office). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17473	12-21-2010	An Ordinance releasing a condition placed on property by Ordinance No. 010993 which changed the zoning of a portion of Blocks 42 and 43 of Alexander Addition; portion of Collins Survey No. 209; portions of Pierce Street, Erie Street and Schuster Street; an alley adjoining a portion of Blocks 42 and 43 of Alexander Addition and Collins Survey No. 209 and a portion of Block 302, Pierce Finley Addition; and portions of Pierce Street and an alley adjacent to portion of Block 302, Pierce Finley Addition; and portions of Pierce Street and an alley adjacent to a portion of Block 302, Pierce Finley Addition, City of El Paso, El Paso County, Texas, and which imposed a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17474	12-21-2010	An Ordinance changing the zoning of all of Lot 67, Block 214, Tierra Del Este Unit 54, Replat "A", City of El Paso, El Paso County, Texas from R-5 (Residential) to C-2 (Commercial), and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17475	12-21-2010	An Ordinance granting Special Permit No. ZON10-00068, to allow for infill development on the property described as Lots 14 and 15, Block 4, Map of Hughes Subdivision, Block 1, of Alameda Acres, an Addition to the City of El Paso, El Paso County, Texas, pursuant to Section 20.04.260 Special Permit for Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17476	12-21-2010	An Ordinance vacating a portion of a 35 feet wide service road, located adjacent to the west boundary line of Lot 16, Block 74, Sun Valley Addition Unit Seven, City of El Paso, El Paso County, Texas. SUB10-00246		Omitted
17477	1- 6-2011	An Ordinance granting Special Permit No. ZON10-00084, to allow for Infill Development on the property described as Lots 13-20, and the west 75.75 feet of the south 2 feet of Lot 11 and the west 75.75 feet of Lot 12, Block 135 Campbell Addition, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.320 of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17478	1- 6-2011	An Ordinance changing the zoning of Lot 48, Block B, Bassett Addition, City of El Paso, El Paso County, Texas from A-3 (Apartment) to C-1 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17479	1- 6-2011	An Ordinance annexing the following real property described as a portion of Subsection 46, Block 79, Township 2, Texas and Pacific Railway Company Surveys, El Paso County, Texas.		Omitted
17480	1- 6-2011	An Ordinance amending Title 2 (Administration and Personnel) Chapter 2.22 (Open Space Advisory Board), of the El Paso City Code to delete the ex-officio member, to allow subcommittees, and to amend staff support for the Board.	1 Rpld	2.22.010 B.
			2	2.22.040
			3 Added	2.22.060

Ordinance Number	Approval Date	Description	Section	Section this Code
17481	1- 6-2011	An Ordinance to amend Title 5 (Business Taxes, Licenses and Regulations), Chapter 5.84, by adding Section 5.84.215 (Authority to Issue Citations); the penalty as being provided in Chapter 5.84.220 of the El Paso City Code.	1 Added	5.84.215
17482	1-11-2011	An Ordinance changing the zoning of a portion of Lot B, Block 79, Eastwood Heights, City of El Paso, El Paso County, Texas from C-OP (Commercial Office Park) to C-1 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17483	1-18-2011	An Ordinance granting to Paul Berube a non-exclusive franchise for litter receptacles on sidewalks and other City property.		Omitted
17484	1-18-2011	An Ordinance authorizing the City Manager to sign a contract of sale and any other necessary documents between the City of El Paso and the George L. Hermann Living Trust which will allow the City to convey a portion of Block 302, Pierce Finley Addition, together with vacated portions of Pierce Street and an alley adjacent to the identified portion of Block 302, Pierce Finley Addition, an Addition to the City of El Paso, El Paso County, Texas.		Omitted
17485	1-18-2011	An Ordinance approving the "Plan El Paso 2010: Connecting El Paso: Building Transit-Oriented Neighborhoods at Remcon Circle, Oregon Corridor, and Five Points and Redeveloping ASARCO" Plan as a Study Area Plan to be incorporated into the City's Comprehensive Plan, "The Plan for El Paso," and that the 2025 General Land Use Map be amended to incorporate the modification.		Omitted
17486	1-18-2011	An Ordinance vacating a 0.132 acre of land being a dedicated portion of Caufield Place Right-of-Way, City of El Paso, El Paso County, Texas.		Omitted
17487	1-18-2011	An Ordinance revising the process of obtaining a permit to cut or excavate in the city right-of-way and drill monitoring wells by amending Title 13 (Streets, Sidewalks and Public Places), Chapter 13.08 (Excavations) requiring permits to make a cut or excavation in the city right-of-way and to drill monitoring wells; requiring insurance and bonds; providing the authority to issue citations; and providing for permit and inspection fees and specifications and Chapter 13.04 (Street and Sidewalks Construction and Maintenance), Section 13.04.010 (Permit Required) of the El Paso City Code concerning sidewalk construction permits; and amending Title 15 (Public Services), Chapter 15.08 (Public Services), Section 15.08.120 (Special Privilege Licenses and Permits) of the El Paso City Code to exclude monitoring well permits from Special Privilege Permits; the penalty being as provided in Section 13.08.140 (Violation-Penalty) of the El Paso City Code.	1 Rpld	13.08.010—13.08.180
			Added	13.08.010—13.08.140
			2	13.04.010
			3	15.08.120 G.7.
17488	1-18-2011	An Ordinance amending Title 2 (Administration and Personnel), Chapter 2.30 (Construction and Board of Appeals), Section 2.30.010 (Purpose), Section 2.30.060 (Powers) and Section 2.30.070 (Appeals) of the El Paso City Code by adding appeals from the City Engineer in connection with permits issued under Chapter 18.44 (Grading), Chapter 13.08 (Excavation) and Section 13.04.010 (Sidewalk and Curb Permit Required); specifying appeal procedures and repealing Section 2.30.090; the penalty being as provided in Chapter 1.08 (General Penalty) of the El Paso City Code.	1	2.30.010

Ordinance Number	Approval Date	Description	Section	Section this Code
			2	2.30.060
			3	2.30.070
			4 Rpld	2.30.090
17489	1-18-2011	An Ordinance amending Title 12 (Vehicles and Traffic) of the El Paso City Code by adding a new Chapter 12.30 (Temporary Traffic Control) requiring a temporary traffic control permit for work performed in the public-right-of-way and other uses of the right-of-way; establishing criteria of the issuance of the permit, bond and insurance requirements and duties and obligations of the permittees; establishing fees and providing for stop work orders and enforcement authority; the penalty being as provided in Section 12.30.115 of the El Paso City Code.	1 Added	12.30.010—12.30.170
17490	1-25-2011	An Ordinance amending Title 20 (Zoning), Chapter 20.02 (General Provisions and Definitions); Chapter 20.06 (Zoning Districts and Maps); Chapter 20.10 (Supplemental Use Regulations); and Appendix A (Table of Permissible Uses) of the El Paso City Code, to amend the definition for Open Space and Natural Open Space, amend the Natural Open Space District; amend standards for Supplemental Uses in Natural Open Space; and to amend the Permissible Use Standards in Natural Open Space Districts. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.	1	20.02.648
			2	20.02.651
			3	20.06.02 D.13.B.
			4	20.10.385 C.
			5	Tit. 20, App. A
17491	1-25-2011	An Ordinance granting Special Permit No. ZON10-00080, to allow for infill development on the property described as Lots 17 to 23, and the East 5 feet of Lot 24, Block 110, Amended Map of Morningside Heights Addition, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.320 of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17492	1-25-2011	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.150 (Schedule XIV, Speed Limits) of the El Paso City Code by Designating a forty five mile per hour speed limit on Zaragoza Road from Joe Battle Boulevard to Sun Fire Boulevard and designating a fifty mile per hour speed limit on Zaragoza Road from Sun Fire Boulevard to mile post 3.399; The penalty being as provided in Section 12.84.010 (Violation - Penalty) of the El Paso City Code.	1	12.88.150 H.32.
			2	12.88.150 I.6.
17493	2- 1-2011	An Ordinance amending the El Paso City Code by amending Title 13 (Streets, Sidewalks, and Public Spaces), Chapter 13.36 (Parades and Public Assemblies), Section 13.36.050 (Costs and Fees) E to extend the application period for organizations seeking City support, the penalty is as provided for in Section 13.36.100 of the El Paso City Code.		13.36.050 E.
17494	2- 8-2011	An Ordinance granting Special Permit No. ZON10-00088, to allow for infill development and a 100% parking reduction on the property described as Lot 10 and north 20 feet of Lot 9, Block 192, Alexander Subdivision, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.320 and 20.14.070 of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17495	2- 8-2011	An Ordinance changing the zoning of the following real property known as: Parcel 1: A portion of Tract 1A, Nellie D. Mundy Survey 242 and Tract 1B5C, S.J. Larkin Survey 266, City of El Paso, El Paso County, Texas, from C-1 (Commercial) to R-3A (Residential); Parcel 2: A portion of Tracts 1A and 1B4, Nellie D. Mundy Survey 242, City of El Paso, El Paso County, Texas, from C-1 (Commercial) to R-3A (Residential); Parcel 3: A portion of Tracts 1 and 1A1, Nellie D. Mundy Survey 242 and Tracts 1B5C and 1B5B2, S.J. Larkin Survey 266, City of El Paso, El Paso County, Texas, from C-3/c (Commercial/Condition) to R-3A (Residential); and Parcel 4: A portion of Tracts 1 and 3A, Nellie D. Mundy Survey 242 and Tract 1B4C, S.J. Larkin Survey 266, City of El Paso, El Paso County, Texas, from C-3/c (Commercial/Condition) to R-3A (Residential). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17496	2- 8-2011	An Ordinance releasing a condition placed on property by Ordinance No. 15672 which changed the zoning of the following real property known as: Parcel 1: Portion of Tracts 1 and 1A1, Nellie D. Mundy Survey 242 and Tracts 1B5C and 1B5B2, S.J. Larkin Survey 266, City of El Paso, El Paso County, Texas, and Parcel 2: Portion of Tracts 1 and 3A, Nellie D. Mundy Survey 242 and Tract 1B4C, S.J. Larkin Survey 266, City of El Paso, El Paso County, Texas, and which imposed a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17497	2- 8-2011	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.030 (Schedule III - Parking Prohibited at all times on Certain Streets) of the El Paso City Code to Prohibit Parking on University Avenue Between Kansas Street and Ochoa Street; the penalty being as provided in Section 12.84.010 (Violation - Penalty) of the El Paso City Code.	1 Added	12.88.030 449.
17498	2-15-2011	An Ordinance granting Special Permit No. ZON10-00043, to permit infill development, on the property described as Tract 33, Pavo Real Subdivision, City of El Paso, El Paso County, Texas, Pursuant to Section 20.04.320 of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17499	2-15-2011	An Ordinance amending the 2025 Proposed Thoroughfare System as detailed in the Map Atlas of The Plan for El Paso and its related documents as originally approved by El Paso City Council in 1999, and as subsequently amended, to delete Southwestern Drive, Northwestern Drive, and an unnamed east-west collector arterial as collector arterials north of Redd Road, south of Helen of Troy Drive, and east of Interstate Highway 10.		Omitted
17500	2-15-2011	An Ordinance authorizing the City Manager to sign a Contract of Sale and any other necessary documents between the City of El Paso and Sadie Leilani Sanchez which will allow the City to convey Lot 16, Block 17, Sun Ridge Subdivision Unit Five Addition, City of El Paso, El Paso County, Texas to Sadie Leilani Sanchez.		Omitted
17501	2-15-2011	An Ordinance authorizing the City Manager to sign a Contract of Sale and any other necessary documents between the City of El Paso and Vianey Estrella Ramirez which will allow the City to convey Lot 24, Block 135, Tierra Del Este Unit Thirty Four Addition, City of El Paso, El Paso County, Texas to Vianey Estrella Ramirez.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17502	3- 1-2011	An Ordinance changing the zoning of Tract 1A, Block 26, Ysleta Grant, City of El Paso, El Paso County, Texas from R-F (Ranch-Farm) to C-3 (Commercial) and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17503	3- 1-2011	An Ordinance changing the zoning of the following real property known as: Parcel 1: A portion of Section 17, Block 80, Township 1, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas, from R-F (Ranch & Farm) to C-3 (Commercial) and imposing a certain condition; Parcel 2: A portion of Section 17, Block 80, Township 1, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas, from R-F (Ranch & Farm) to C-3 (Commercial) and imposing a certain condition; Parcel 3: A portion of Section 17, Block 80, Township 1, Texas and Pacific Railway Company Surveys, and a portion of Mesquite Hills Drive out of Mesquite Hills Unit Two, City of El Paso, El Paso County, Texas, from R-F (Ranch & Farm) to C-3 (Commercial) and imposing a certain condition; Parcel 4: A portion of Sections 16 and 17, Block 80, Township 1, Texas and Pacific Railway Company Surveys, and a Portion of Mesquite Hills Drive out of Mesquite Hills Unit Two, City of El Paso, El Paso County, Texas, from R-F (Ranch & Farm) to C-1 (Commercial); Parcel 5: A portion of Sections 16 and 17, Block 80, Township 1, Texas and Pacific Railway Company Surveys, and a portion of Mesquite Hills Drive out of Mesquite Hills Unit Two, City of El Paso, El Paso County, Texas, from R-F (Ranch & Farm) to A-2 (Apartment). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17504	3- 1-2011	An Ordinance changing the zoning of Lot 2, Block 6, Castner Range Unit One, City of El Paso, El Paso County, Texas from R-4 (Residential) to A-O (Apartment-Office). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17505	3- 1-2011	An Ordinance granting a Special Privilege License to Northeast 58 TBH/IT LLC for the construction, installation, maintenance and repair of a bridge crossing and access driveway over portions of City right-of-way at Kenworthy Drive and across a portion of the Northgate Outlet Channel for a term of fifty years.		Omitted
17506	3- 8-2011	An Ordinance authorizing the City Manager to sign a Contract of Sale and any other necessary documents between the City of El Paso and Carolina Peralta which will allow the City to convey Lot 11, Block 157, Tierra Del Este Unit Forty Four Subdivision Addition, City of El Paso, El Paso County, Texas to Carolina Peralta.		Omitted
17507	3- 8-2011	An Ordinance amending Title 7 (Animals), Chapter 7.28 (Animal Shelter Advisory Committee), Section 7.28.030 (Terms of Office) of the El Paso City Code to establish term limits.	1	7.28.030 B.
17508	3- 8-2011	An Ordinance amending Title 7 (Animals), Chapter 7.30 (Animal Welfare Advisory Committee), Section 7.30.030 (Terms of Office) of the El Paso City Code to establish term limits.	1	7.30.030 B.
17509	3- 8-2011	An Ordinance vacating a portion of Cebada Street (70' public right-of-way), between Block 60 and Block 61, East El Paso Addition, City of El Paso, El Paso County, Texas.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17510	3- 8-2011	An Ordinance authorizing the City Manager to execute a quitclaim (Tax Resale) deed conveying all right, title and interest in real property described as Lot 46, Block 102, Morningside Heights, amended, to City of El Paso, in accordance with Section 34.05 (H) of the tax code.		Omitted
17511	3- 8-2011	An Ordinance authorizing the City Manager to execute a quitclaim (Tax Resale) deed conveying all right, title and interest in real property described as Lots 31 & 32, and Lots 37 to 41, Block 102, Morningside Heights, to City of El Paso, in accordance with Section 34.05 (H) of the tax code.		Omitted
17512	3- 8-2011	An Ordinance authorizing the City Manager to execute a quitclaim (Tax Resale) deed conveying all right, title and interest in real property located at 240 Colfax St., to City of El Paso, in accordance with Section 34.05 (H) of the tax code.		Omitted
17513	3- 8-2011	An Ordinance authorizing the City Manager to execute a quitclaim (Tax Resale) deed conveying all right, title and interest in real property described as Lot 25, Block 8, Alamo Alto Townsite Addition, an addition in El Paso County, Texas, to Richard B. Martinez, Jr., in accordance with Section 34.05 (H) of the tax code.		Omitted
17514	3-15-2011	An Ordinance authorizing the City Manager to execute a quitclaim (Tax Resale) deed conveying all right, title and interest in Real Property located at 6107 Laguna Vista Dr., to City of El Paso, in accordance with Section 34.05 (H) of the Tax Code.		Omitted
17515	3-22-2011	An Ordinance releasing a condition placed on property by Ordinance No. 16332 which changed the zoning of Lot 1, Block 1, Placitas De Zaragoza, City of El Paso, El Paso County, Texas, and which imposed a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17516	3-29-2011	An Ordinance creating uniform grading requirements by amending Title 18 (Building and Construction), Chapter 18.44 (Grading) in its entirety to provide for grading permits, fees, insurance, bonds, indemnification and enforcement requirements; and Title 9 (Health and Safety), Chapter 9.04 (Solid Waste Management), Section 9.04.860, by prohibiting erosion and Section 9.04.870, exempting land that has never been graded; the penalty being as provided in sections 9.04.630, 18.02.107 and 18.44.210 of the El Paso City Code.	1 Rpld	18.44.010—18.44.250
			Added	18.44.010—18.44.220
			2	9.04.860, 9.04.870
17517	3-29-2011	An Ordinance amending Title 19 (Subdivisions), Chapter 19.08 (Subdivision Improvement Plans), Section 19.08.020D (Grading Permits) and Chapter 19.50 (Definitions), Section 19.50.030 (Definitions) of the El Paso City Code to amend the provisions for grading permits and borrow or waste permits and to change the definition of grading. The penalty as provide for in Chapter 19.42 of the El Paso City Code.	1	19.08.020 D.1.
			2	19.50.030
17518	3-29-2011	An Ordinance amending Title 20 (Zoning), Chapter 20.16 (Screening and Fencing) and Section 20.16.020 (Mandatory Walls), of the El Paso City Code to amend the certain mandatory wall requirements along drainage structures and canals. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.	1	20.16.020 C.

Ordinance Number	Approval Date	Description	Section	Section this Code
17519	3-29-2011	An Ordinance amending Ordinance No. 017471, Title 9 (Health and Safety), Chapter 9.04 (Solid Waste Management) to amend the effective date of the Franchise Agreement requirements; the penalty being as provided in Section 9.04.630 of the El Paso City Code.	1	Ch. 9.04, Art. VII(note)
17520	3-29-2011	An Ordinance vacating a portion of Frankfort Street Right-Of-Way, within Blocks 91 & 92, Grandview Addition, an addition to the City of El Paso, El Paso County, Texas.		Omitted
17521	3-29-2011	An Ordinance authorizing the City Manager to sign a Contract of Sale and any other necessary documents between the City of El Paso and the El Paso Collaborative for Community and Economic Development which will allow the City to convey: Lot 5, Block 98, Sun Valley Addition, an addition to the City of El Paso, El Paso County, Texas, being more particularly described in Volume 1178, Page 362, Deed Records of El Paso County, Texas; also known and numbered as 5629 Hemmingway Drive, El Paso, Texas.		Omitted
17522	3-29-2011	An Ordinance authorizing the City Manager to sign a Contract of Sale and any other necessary documents between the City of El Paso and the El Paso Collaborative for Community and Economic Development which will allow the City to convey: Lot 2071, Block 85, Mountain View Addition, an Addition to the City of El Paso, El Paso County, Texas, being more particularly described in Volume 2, Page 23, Plat Records of El Paso County, Texas; also known and numbered as 4903 Wichita Circle, El Paso, Texas to the El Paso Collaborative for Community and Economic Development.		Omitted
17523	3-29-2011	An Ordinance authorizing the City Manager of the City of El Paso to sign a special warranty deed and any other documents required, such as, but not limited to, a disclaimer of interest in property or donation agreement, to convey to the State of Texas, approximately 12.080 acres of land known as Parts 1 and 2 of Parcel 14 along and adjacent to the existing Loop 375 being portions of Nellie D. Mundy Survey 246, City of El Paso, El Paso County, Texas, for The State of Texas Loop 375 Highway Project.		Omitted
17524	4- 5-2011	An Ordinance amending Ordinance No. 017109 which vacated a portion of Boston Avenue to allow a one year extension to complete improvements on the pedestrian walkway and to revise the quitclaim deed to reflect the extended time for completion.		Omitted
17525	4- 5-2011	An Ordinance granting Special Permit No. ZON10-00101, to allow for infill development and a 35% parking reduction on the property described as Lots 52, 53, 54, 55, and 56, Block B, Bassett Addition, City of El Paso, El Paso County, Texas, pursuant to Section 20.14.070 parking reduction and 20.10.280 infill development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17526	4-12-2011	An Ordinance amending Ordinance No. 15558 originally adopted on September 16, 2003 authorizing the issuance of "City of El Paso, Texas, Airport Revenue Refunding Bonds, Series 2003 (El Paso International Airport)"; and resolving other matters related thereto.		Omitted
17527	4-12-2011	An Ordinance authorizing the issuance of "City of El Paso, Texas, Airport Revenue Bonds, Series 2011 (El Paso International Airport)"; and resolving matters which are necessary to effectuate said issuance, including the delegation of authority. Estimated amount of Airport Revenue Bonds to be issued is $16,750,000.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17528	4-12-2011	An Ordinance amending Title 19 (Subdivisions), Chapter 19.20 (Parks and Open Space), Section 19.20.030 (Parkland Calculation) and Section 19.20.050 (Standards for Deeded Parkland), Chapter 19.23 (Lots-Determination and Regulation of Size) and Chapter 19.50 (Definitions) of the El Paso City Code to amend the park size requirements for residential development and parkland characteristics and improvements, to require front build-to lines on plats and to add definitions for build-to line, green plaza, pocket park, and square. The penalty is as provided in Chapter 19.42 of the City of El Paso City Code.	1	19.20.030 B.
				19.20.050 A.
				19.20.050 B.3.g.
			Added	19.20.050 B.3.j.
				19.20.050 B.4.
			2	19.50.030
17529	4-12-2011	An Ordinance modifying the Rim-University Neighborhood Plan, to amend the design standards to allow certain types of solar panels to be placed on rooftops and that the City's Comprehensive Plan, "The Plan for El Paso," be amended to incorporate the modification.		Omitted
17530	4-12-2011	An Ordinance authorizing the City Manager to sign a Contract of Sale and any other necessary documents between the City of El Paso and Arturo Aguilar which will allow the City to convey Lot 19, less the Northerly 4.36 feet thereof, and less the Southerly 0.77 feet thereof, Block 3, HUECO MOUNTAIN VILLAGE REPLAT A, an addition to the City of El Paso, El Paso County, Texas, to Arturo Aguilar.		Omitted
17531	4-12-2011	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.180 (No stopping or standing - Tow-Away Zone) Paragraph III (Oregon Street) of the El Paso City Code to remove the temporary suspension of No Stopping or Standing Tow-Away Zone between Kerbey Avenue and Robinson Avenue and to extend the No Stopping or Standing Tow-Away Zone from Yandell Drive to Schuster Avenue, the penalty being as provided in Section 12.84.010 (Violation - Penalty) of the El Paso City Code.	1	12.88.180 111.
17532	4-19-2011	An Ordinance amending Title 20 (Zoning), Chapter 20.02 (General Provisions and Definitions), Chapter 20.10 (Supplemental Use Regulations) and Appendix A (Table of Permissible Uses) of the El Paso City Code to add a definition of Accessory Dwelling Units and to add standards for Accessory Dwelling Units. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.	1 Added	20.02.029
			2	20.10.030 A.1.
			3	20.10.030 A.3.
			4	20.10.030 A.4.
			5 Added	20.10.035
			6	Ch. 20, App. A
17533	4-19-2011	An Ordinance changing the zoning of a portion of Lot 4, Block C, Collingsworth Subdivision Supplemental Map, City of El Paso, El Paso County, Texas from A-2 (Apartment) to C-3 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17534	4-19-2011	An Ordinance changing the zoning of Lots 1-13, Block 1, San Angelino Estates; formerly Lots 1-11, Block 1, Amado Urbina; formerly Lots 5 & 6 and a portion of Lot 7, Block 8, Alameda Acres, City of El Paso, El Paso County, Texas from R-3A (Residential) to R-4 (Residential). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17535	4-19-2011	An Ordinance changing the zoning of a portion of Yucca Village Replat A, and a portion of Tract 10A Parkland Addition, City of El Paso, El Paso County, Texas from A-M/sc (Apartment/Mobile Home Park/special contract) to A-O/sc (Apartment/Office/special contract). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17536	4-19-2011	An Ordinance granting Special Permit No. ZON10-00095, to permit an Adult Day Care on the property described as being a portion of Yucca Village Replat A, and a portion of Tract 10A Parkland Addition, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.320 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code.		Omitted
17537	4-19-2011	An Ordinance changing the effective date of Ordinance No. 017504, which will change the zoning of Lot 2, Block 6, Castner Range Unit One, City of El Paso, El Paso County, Texas from R-4 (Residential) to A-O (Apartment-Office) from April 26, 2011 to May 25, 2011. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17538	4-19-2011	An Ordinance amending the 2025 Proposed Thoroughfare System as detailed in the Map Atlas of The Plan for El Paso and its related documents as originally approved by El Paso City Council in 1999, and as subsequently amended, to realign the proposed extension of Rojas Drive, Peyton Drive, Emerald Pass Avenue and extend a proposed collector known as Nonap Road.		Omitted
17539	4-19-2011	An Ordinance amending Title 19 (Subdivisions), Chapter 19.47 (Vested Rights) and 19.50 (Definitions) of the El Paso City Code to delete the Chapter 19.47 in its entirety and to amend the definition for vested rights petition. The penalty is as provided in Chapter 19.42 of the El Paso City Code.	1 Rpld	19.47.010—19.47.070
			2	19.50.030
17540	4-19-2011	An Ordinance amending Title 1 (General Provisions), Chapter 1.04 (General Provisions), of the El Paso City Code to add a section addressing the vesting of projects. The penalty is as provided for in Section 1.08 of the El Paso City Code.	1 Added	1.04.070
17541	4-26-2011	An Ordinance changing the zoning of the following real property known as: Parcel 1: A portion of Section 46, Block 79, Township 2, Texas and Pacific Railroad Company Surveys, City of El Paso, El Paso County, Texas, from C-1 (Commercial) to R-5 (Residential) Parcel 2: A portion out of 318.9530 acre tract of land as recorded in Book 3134, Page 1607, Real Property Records of El Paso County, Texas and also being a portion of Section 46, Block 79, Township 2, Texas and Pacific Railroad Company Surveys, City of El Paso, El Paso County, Texas from R-5 (Residential) to C-1 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17542	4-26-2011	An Ordinance amending Title 21, (Smart Code), Chapter 21.10 (General To All Plans), Chapter 21.30 (New Community Plans), Chapter 21.40 (Infill Community Scale Plans), Chapter 21.50 (Building Scale Plans), Chapter 21.70 (Definitions of Terms), and Chapter 21.80 (Tables) of the El Paso City Code to clarify the code and add standards for new zones. The penalty is as provided for in Chapter 21.60 of the El Paso City Code.	1	21.10.010 A.
			2—6	21.10.020—21.10.060
			7	21.30.010
			8—15	21.30.030—21.30.100
			16	21.40(tit.)

Ordinance Number	Approval Date	Description	Section	Section this Code
			17	21.40.010
			18—23	21.40.020—21.40.070
			24	21.50.010
			25	21.50.030
			26	21.50.040
			27	21.50.060 B., C.
			28—34	21.50.070—21.50.130
			35	21.50.140 A.
			36	21.50.140 F.
			37	21.70.010
			38	21.80.010
				21.80.030—21.80.170
				21.80.200—21.80.240
17543	4-26-2011	An Ordinance amending Title 9 (Health and Safety), Chapter 9.04 (Solid Waste Management), Section 9.04.880 (City Abatement) to amend the notice requirements. The penalty being as provided in Section 9.04.630 of the El Paso City Code.	1	9.04.880 B.

Ordinance Number	Approval Date	Description	Section	Section this Code
17544	4-26-2011	An Ordinance amending Title 9 (Health and Safety), Chapter 9.12 (Food and Food Handling Establishments), Section 9.12.010 (Definitions) to amend "Mobile Establishment"; Section 9.12.040 (Permit - Approval Process) to remove reference to the 1000 foot separation requirement; Section 9.12.180 (Renewal) to revise the time frame; Section 9.12.800 (Mobile Establishments) in its entirety to remove the Mobile Establishment sticker and the 1000 foot separation requirements; and Section 9.12.810 (Temporary, Recurrent and Seasonal Establishments) to clarify inspection of central preparation facilities and to exempt permitted mobile establishments from duplicate permit requirements; the penalty as provided in Section 9.12.890 of the El Paso City Code.	1	9.12.010
			2	9.12.040 C.
			3	9.12.180 B.
			4	9.12.800
			5	9.12.810 A.1.
			Added	9.12.810 A.3.
				9.12.810 J.
17545	4-26-2011	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.46 (Mobile Food Vendors), Section 12.46.020 (Mobile Food Vending Regulations) to modify certain stopping, standing or parking distance restrictions; to remove the nocturnal sales prohibition and distance limitation regarding a commercial daycare facility; the penalty as provided in Section 12.46.020K. of the El Paso City Code.	1	12.46.020 C.
			Rpld	12.46.020 E.
			Rpld	12.46.020 G.
				12.46.020 H.
17546	5- 3-2011	An Ordinance amending Title 20 (Zoning), Chapter 20.02 (General Provisions and Definitions) and Chapter 20.18 (Sign Regulations) of the El Paso City Code to add a definition for perpendicular signs and to add standards for perpendicular signs. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.	1 Added	20.02.941
			2	20.18.460 C.
			3	20.18.460 F.
			4 Added	20.18.480 D.
			Rnbd	20.18.480 D.—F.
			as	20.18.480 E.—G.
17547	5- 3-2011	An Ordinance amending Title 20 (Zoning), Chapter 20.06 (Zoning Districts and Maps), Section 20.06.010 (Districts Established and Enumerated), Section 20.06.020 (Purpose Of Districts) and Chapter 20.10 (Supplemental Use Regulations) and Appendix A (Table of Permissible Uses) of the El Paso City Code to add a Urban Reserve District and establish standards for the district to include uses allowed in the district. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.	1	20.06.010 D.
			2 Added	20.06.020 D.14.
			3 Added	20.10.555
			4	Ch. 20, App. A

Ordinance Number	Approval Date	Description	Section	Section this Code
17548	5- 3-2011	An Ordinance releasing a condition placed on property by Ordinance No. 009147 which changed the zoning of a portion of Lot 1, Block 174A, Vista Del Sol Unit 52, City of El Paso, El Paso County, Texas, and which imposed a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17549	5- 3-2011	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.44 (Stopping, Standing and Parking Generally), Section 12.44.050 (Angled-Parking - Offset Parking) of the El Paso City Code to allow angle parking in the Central traffic district and the Five Points traffic district. The penalty being as provided in Section 12.85.110 (Fines and Fees) of the El Paso City Code.	1	12.44.050 A.
17550	5-10-2011	An Ordinance changing the zoning of the following real property known as: Parcel 1: S. J. Larkin Survey 267 and a Portion of S. J. Larkin Survey 268, City of El Paso, El Paso County, Texas, from R-3 (Residential) and PMD (Planned Mountain Development) to URD (Urban Reserve District); Parcel 2: Portion of Nellie D. Mundy Survey 246; City of El Paso, El Paso County, Texas, from R-3 (Residential) and PMD (Planned Mountain Development) to URD (Urban Reserve District); Parcel 3: Portion of Nellie D. Mundy Survey 246; City of El Paso, El Paso County, Texas, from R-3 (Residential) and PMD (Planned Mountain Development) to URD (Urban Reserve District); Parcel 4: Portion of S. J. Larkin Survey 269; City of El Paso, El Paso County, Texas, from PMD (Planned Mountain Development) to URD (Urban Reserve District); and Parcel 5: Portion of S. J. Larkin Survey 269, City of El Paso, El Paso County, Texas, from PMD (Planned Mountain Development) to URD (Urban Reserve District); the penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17551	5-10-2011	An Ordinance granting a Special Privilege License to Ysleta Independent School District for the construction, installation, maintenance, and repair of two (2) subsurface HVAC conduit facilities within portions of City right-of-way beneath Davis Street for a term of twenty years with two renewable twenty year terms.		Omitted
17552	5-10-2011	An Ordinance granting a franchise to Elite Medical Transport to operate a non-emergency ambulance transfer service.		Omitted
17553	5-10-2011	An Ordinance granting a franchise to Dominion Ambulance to operate a non-emergency ambulance transfer service.		Omitted
17554	5-10-2011	An Ordinance granting a franchise to Life Ambulance Service to operate a non-emergency ambulance transfer service.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17555	5-10-2011	An Ordinance changing the zoning of the following properties from M-3 (Unrestricted Manufacturing) to SCZ (Smart Code Zone). The penalty is as provided for in Chapter 21.60 of the El Paso City Code. Parcel 1: Parcels 2, 4 and 13, Tracts 2A2 and 2C1, John Barker Survey No. 10, City of El Paso, El Paso County, Texas; and Parcel 2: Parcel 3, Tract 2A1, John Barker Survey No. 10, City of El Paso, El Paso County, Texas; and Parcel 3: Parcel 14, Exhibit H, Tracts 2A1, John Barker Survey No. 10, City of El Paso, El Paso County, Texas; and Parcel 4: Parcel 12, Exhibit G, I.F. Harrison Survey No. 54, City of El Paso, El Paso County, Texas; and Parcel 5: Parcel 10, Exhibit E, I.F. Harrison Survey No. 54, City of El Paso, El Paso County, Texas; and Parcel 6: Parcel 11, Exhibit F, I.F. Harrison Survey No. 54, City of El Paso, El Paso County, Texas; and Parcel 7: Parcel 1, Exhibit C, I.F. Harrison Survey No. 54, City of El Paso, El Paso County, Texas; and Parcel 8: Parcel 9, Exhibit D, I.F. Harrison Survey No. 54, City of El Paso, El Paso County, Texas; and Parcel 9: Parcel 15, Exhibit I, I.F. Harrison Survey No. 54, City of El Paso, El Paso County, Texas; and Parcel 10: Parcel 2, Exhibit C, I.F. Harrison Survey No. 54, City of El Paso, El Paso County, Texas; and Parcel 11: Parcel 3, Exhibit C, I.F. Harrison Survey No. 54, City of El Paso, El Paso County, Texas; and Parcel 12: Parcel 4, Exhibit C, I.F. Harrison Survey No. 54, City of El Paso, El Paso County, Texas; and Parcel 13: Parcel 7, Tract 25, John Barker Survey No. 10, City of El Paso, El Paso County, Texas; and Parcel 14: Parcel 6, Tract 24, John Barker Survey No. 10, City of El Paso, El Paso County.		Omitted
17556	5-10-2011	An Ordinance changing the zoning of Tract 2A, John Barker Survey No. 10, City of El Paso, El Paso County, Texas, from M-3 (Unrestricted Manufacturing) to SCZ (Smart Code Zone), the penalty is as provided for in Chapter 21.60 of the El Paso City Code.		Omitted
17557	5-17-2011	An Ordinance amending Title 20 (Zoning), Chapter 20.02 (General Provisions and Definitions), and Chapter 20.10 (Supplemental Use Regulations), Section 20.10.680 (Temporary Uses) of the El Paso City Code to add a definition for fraternal lodge, to amend the definition for a lodge, to allow for fraternal organizations to conduct temporary fund raising activities, to include temporary rental of facilities. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.	1 Added	20.02.391
			2	20.02.524
			3 Added	20.10.680 D.
			Rnbd	20.10.680 D.—F.
			as	20.10.680 E.—G.
17558	5-17-2011	An Ordinance granting Special Permit No. ZON11-00010, to allow for Infill Development on the property described as north 60 feet of Lot 4, Najera Subdivision, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.320 of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17559	5-17-2011	An Ordinance changing the zoning of a portion of Tract 1, Block 1, Ascarate Grant, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) to C-1 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17560	5-17-2011	An Ordinance amending Title 20 (Zoning), Chapter 20.14 (Off-street Parking, Loading, and Storage Standards), and Appendix C (Minimum Parking Requirements) of the El Paso City Code, to add maximum parking standards and to amend other provisions for vehicle parking requirements. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.	1	20.14.020 A.
				20.14.020 D., E.
			2	20.14.050
			3	20.14.060
			4	20.14.070 A.
			5	20.14.070 C.3.b.vi.
			6	20.14.070 D.1.
			7	20.14.070 D.2.a.
			8	20.14.070 D.2.c.
			9	20.14.070 D.2.d.
			10	20.14.080 A.1.a.
			11	20.14.170 C.
			12	Ch. 20, App. C
17561	5-17-2011	An Ordinance amending Title 19 (Subdivisions), Article 1 (Subdivision Procedures), Chapter 19.01 (Provisions Applicable To All Platting Procedures), Chapter 19.05 (Reserved), and Chapter 19.20 (Parks and Open Space) of the El Paso City Code, to include provisions for Development Plats and for requiring recalculation of Parkland Fees or dedication for non-residential subdivisions that increase dwelling units or change use to allow dwelling units. The penalty is as provided for in Section 19.42 of the El Paso City Code.	1	Tit. 19(tit.)
			2	Tit. 19, Art. 1(tit.)
			3	19.01.010 B.1., 2.
				19.01.010 C.1., 2.
				19.01.010 D.
			4	19.01.020
			5	19.01.040 A.
				19.01.040 B.2.
				19.01.040 C.
			6 Added	19.01.050 F.
			7	19.01.060
			8 Added	19.05.010—19.05.060
			9	19.20.020 C.
17562	5-17-2011	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.041 (Schedule IV A - Parking Prohibited during certain hours-school days only) of the El Paso City Code, by adding Maya Lizabeth Place, Breean Isabell Place, and Tierra Inca Drive between Tierra Este Drive and Pablo Sanchez Place, the penalty being as provided in Section 12.84.010 of the El Paso City Code.	1 Added	12.88.041 22.—24.

Ordinance Number	Approval Date	Description	Section	Section this Code
17563	5-24-2011	An Ordinance changing the zoning of all of Tract 57, Nellie D. Mundy Survey No. 241, City of El Paso, El Paso County, Texas from R-3 (Residential) to R-5 (Residential). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17564	5-24-2011	An Ordinance approving a Detailed Site Development Plan to reduce the lot depth for all of Lot 29, Block 13, Tres Suenos Amending Unit 4, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.150 and Section 20.10.360 of the El Paso City Code. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17565	5-24-2011	An Ordinance changing the zoning of Lots 1, 2, 3, and the East ½ of Lot 4, Block 15, Woodlawn Addition, City of El Paso, El Paso County, Texas from A-3 (Apartment) to S-D (Special Development). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17566	5-24-2011	An Ordinance granting Special Permit No. ZON11-00006, to allow for infill development and a parking reduction on the property described as Lots 1, 2, 3, and the east ½ of Lot 4, Block 15, Woodlawn Addition, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.320 of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17567	5-24-2011	An Ordinance amending Title 20 (Zoning), Chapter 20.02 (General Provisions and Definitions), Appendix A (Permissible Uses) and Appendix C (Table of Parking Requirements and Standards) of the El Paso City Code to add a definition for transitional housing and to designate where transitional housing will be allowed. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.	1 Added	20.02.1105
			2	Ch. 20, App. A
			3	Ch. 20, App. C
17568	5-24-2011	An Ordinance changing the zoning of all of Lots 17 through 21 and a portion of Lot 22, Block 16, Franklin Heights, City of El Paso, El Paso County, Texas from A-3/H (Apartment/Historic) to S-D/H (Special Development/Historic). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17569	5-24-2011	An Ordinance changing the zoning of a portion of Lots 1 and 2, Block 2, Butterfield Trail Aviation Park Unit Two, all of Butterfield Trail Aviation Park Unit Three, and portions of Sections 22, 23, 26, and 27, Block 80, Township 2, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas from A-3 (Apartment), C-4 (Commercial) and M-1 (Light Manufacturing) to SCZ (Smart Code Zone). The penalty is as provided for in Chapter 21.60 of the El Paso City Code.		Omitted
17570	5-24-2011	An Ordinance amending Title 19 (Subdivisions), Chapter 19.21 (Sidewalks) Section 19.21.020 (General Requirements) and Chapter 19.15 (Roadways) Section 19.15.110 (Street Width and Design, Table 19.15-3 Widths/Design Required by Street Type), 19.15.090 (Cul de Sac Streets), Table 19.15-1 (Width for Cul de Sac Streets for Certain Activities) of the El Paso City Code to amend cul de sac standards and requirements. The penalty is as provided in Chapter 19.42 of the City of El Paso City Code.	1	Table 19.15-3
			3	Table 19.15-1

Ordinance Number	Approval Date	Description	Section	Section this Code
17571	5-24-2011	An Ordinance amending Title 19 (Subdivisions), Section 19.15.060 (Street Standards) and Chapter 19.15.080 (Street Length) of the El Paso City Code to amend access to lots and street length provisions. The penalty is as provided in Chapter 19.42 of the City of El Paso City Code.	1	19.15.060 F.
			2	19.15.080 A.
17572	5-31-2011	An Ordinance authorizing the City of El Paso to sell approximately 2,420 square feet, situated in Block 4, of the Socorro Grant, El Paso County, Texas and being a portion of Lot 6 and Lot 7, Block 1, Delip Subdivision, El Paso County, Texas (Parcel 19), to the State of Texas, acting by and through the Texas Department of Transportation, said parcel to be included in a highway construction project for FM Highway 76.		Omitted
17573	5-31-2011	An Ordinance terminating the franchise granted by the City of El Paso and accepted by Alta Vista Construction Group, L.L.C. in Ordinance No 016926 for placement of benches at bus stops on city rights of way.		Omitted
17574	6- 7-2011	An Ordinance authorizing the City Manager to execute a Quitclaim (Tax Resale) Deed conveying all right, title and interest in real properties described as Lots 1 thru 40, Block 70; Lots 13 thru 18, Block 71; and Lots 28 thru 32, Block 71, Wilco Subdivision Unit No. 2, El Paso County, Texas, to H. Daniel Pettit and Kimberly Keeton-Pettit. In accordance with the Section 34.05 (h) of the tax code.		Omitted
17575	6- 7-2011	An Ordinance amending Title 18 (Building and Construction), Chapter 18.46 (Landscape) of the El Paso City Code to modify and add additional definitions, to modify the landscapable area, to require parkway and frontage area landscaping and a landscape buffer between commercial and residential development, to modify the required plant units and parking lot trees, and to add provisions for street trees. The penalty being as provided in Section 18.46.180 (Violations - Penalty) of the El Paso City Code.	1 Rpld	18.46.010—18.46.190
			Added	18.46.010—18.46.140,
				18.46.200, 18.46.210,
				18.46.300—18.46.320,
				18.46.340
17576	6- 7-2011	An Ordinance amending Title 19 (Subdivisions), Chapter 19.20 (Parks and Open Space), Section 19.20.060 (Exclusions from dedication requirement) and Chapter 19.26 (Alternative Subdivision/Smart Code Designs), Section 19.26.020 (Infill Development) of the El Paso City Code to allow for certain exclusions from the parkland dedication requirements for certain replats meeting specific criteria and to allow for the reduction of park fees on certain infill developments and adding an appendix to designate the reduction of such fees. The penalty is as provided for in Section 19.42 of the El Paso City Code.	1	19.20.060 B.
			2 Added	19.26.020 E.6.
			3 Added	Tit. 19, App. 112

Ordinance Number	Approval Date	Description	Section	Section this Code
17577	7- 7-2011	An Ordinance amending Title 20 (Zoning), Chapter 20.02 (General Provisions and Definitions), Chapter 20.10 (Supplemental Use Regulations), Appendix A (Table of Permissible Uses) and Table C (Minimum Parking) of the El Paso City Code to add a definition for boarding home facilities and add standards for boarding home facilities and amend definitions for certain personal care facilities and clarify standards for personal care facilities. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.	1	20.02.040
				20.02.704
				20.02.706
			2 Added	20.02.135
			3 Rpld	20.02.254
			Rpld	20.10.150
			4 Added	20.10.115
			5	20.10.270 A.
			6 Added	20.10.270 B.14.
			7 Rpld	20.10.270 C.
			8	20.10.450
			9	Ch. 20, App. A
			10	Ch. 20, App. C
17578	6- 7-2011	An Ordinance amending Title 5 (Business Taxes, Licenses and Regulations) of the El Paso City Code by adding Chapter 5.47 (Boarding Home Facilities) in order to set forth the requirements and standards for permits, fees, inspections and revocation of such permits of boarding home facilities and providing for a criminal penalty.	1 Added	5.47.001—5.47.150
17579	6-14-2011	An Ordinance amending Title 2 (Administration and Personnel), Chapter 2.92 (Ethics); to Section 2.92.120 (Ethics Training) to add requirements for receiving training on the ethics and lobbying ordinances; the penalty being as provided in Section 2.92.150 A of the El Paso City Code.	1 Added	2.92.120
17580	6-14-2011	An Ordinance amending Title 2 (Administration and Personnel), Chapter 2.40 (Department of Museum and Cultural Affairs) adding Section 2.40.100 (Artist Market) to create an Artist Market permitting vendors from the region to display and sell hand made or hand assembled items for the benefit of the citizens and visitors to El Paso; the penalty provided in Sections 1.08.010 through 1.08.030 of the City Code.	1 Added	2.40.100
17581	6-14-2011	An Ordinance amending Title 15 (Public Services), Chapter 15.08 (Street Rentals) Section 15.08.120 (Special Privilege Licenses and Permits) to create an exception from the permitting requirement for events produced by the Museums and Cultural Affairs Department.	1 Added	15.08.120 G.13.
17582	6-14-2011	An Ordinance amending Title 13 (Streets, Sidewalks, and Public Places), Chapter 13.20 (Miscellaneous Street and Sidewalk Use Regulations) Section 13.20.040 (Selling of Merchandise Prohibited on and near Public Right-of-way) to allow for the sale of items authorized by Ordinance or Permit.	1	13.20.040 C.4.
17583	6-14-2011	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.30 (Temporary Traffic Control) Section 12.30.030 (Permit Required) to create an exemption from the permitting requirement for events produced by the Museums and Cultural Affairs Department.	1	12.30.030 D.

Ordinance Number	Approval Date	Description	Section	Section this Code
17584	6-14-2011	An Ordinance changing the zoning of Lot 1, Block 4, Hueco Mountain Village, City of El Paso, El Paso County, Texas from C-3/SP (Commercial/Special Permit) to C-4 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17585	6-14-2011	An Ordinance amending Title 20 (Zoning), Chapter 20.02 (General Provisions and Definitions), and Chapter 20.18 (Sign Regulations), Sections 20.18.050 (Definitions), Section 20.18.400 (General) and Section 20.18.450 (C-2, C-3, C-4, Q, M-1, M-2 and M-3 Districts) of the El Paso City Code to modify definitions related to signs, to modify monument and pole sign regulations and to modify wall sign regulations. The penalty is as provided in Section 20.24 of the El Paso City Code.	1	20.02.862
				20.02.922
				20.02.942
			2	20.18.050
			3	20.18.400 A.9.b.
			4	20.18.400 A.9.m.
			5	20.18.450 A.
			6	20.18.450 B.1.—7.
			7	20.18.450 D.
17586	6-14-2011	An Ordinance amending Ordinance No. 017456, to provide that City health benefits shall be available to City employees and their legal spouse and dependent children and all other persons who are within an eligible class or in a class that actually received benefits under a City health benefits plan prior to November 10, 2010.		Omitted
17587	6-21-2011	An Ordinance authorizing the issuance of "City of El Paso, Texas, Water and Sewer Revenue Refunding Bonds, Series 2011;" and resolving matters which are necessary to effectuate said issuance, including the delegation of matters relating to the sale and issuance of the Bonds to an authorized City officer or employee within certain specified parameters.		Omitted
17588	6-21-2011	An Ordinance changing the zoning of Tract 10, Section 9, Block 81, Township 2, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas from C-2 (Commercial) to C-3 (Commercial) and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17589	6-21-2011	An Ordinance changing the zoning of the following legally described parcel of land being a portion of Lot 1 and all of Lots 2 through 30, Block 2, and Block 3, Tobins Washington Park, Lots 1 through 30, Block 1, Lots 1 through 54, Block 2, Lots 1 through 26, Block 3, Lots 1 through 17, Block 5, Lots 1 through 5, Block 6, Tobins Second, Block 1, Martinez Homestead Addition, Orchard Park Subdivision, Hadlock Subdivision, Val Verde Subdivision, Block 11, Tracts 1, 2, 2a, 2d1, 6 through 24, 25a, 25b, 25d, 26, 26a, 26b, 27b, 33a, 34, 34a, 35a, 35b, 36, 37b, 37b1, 37b2, 37c, 38c, 38c2, 39a1, E. Bennett Survey No. 11, Gateway Subdivision, Wilkins Replat, portion of E.R. Talley Surveys 6 and 7 (El Paso Zoo), Block 9, Lots 8 through 25 and portion of Lots 5, 6, 7, 26 and 27, Block 10, Blocks 13 through 24, Lincoln Park Addition, portion of Lots 1 And 2, Blocks 16, 17 and 32, French Addition, Block 3 and a portion of Block 4, Chula Vista Addition, Tobins Fourth Addition, Lots 67 through 77, Block 5, Lots 81 through 91, Lots 100 through 109, Block 6, Lots 111 through 122, Block 7, El Valle Addition, F. Neve Survey No. 8, Portion Of Block 3, Portion Of Lot 6 And Lots 7 Through 41 and a portion of 42, Block 6, portion of Lot 1 and Lots 2 through 44, Block 9, Lots 1 through 56, Block 14, Block 15, portion of Lots 16 And 17, Lots 18 through 23 and a portion of 24, Block 16, portion of Lot 12, Lots 13 through 28 and a portion of Lot 29, Block 17, Block 18, Block 19, Lots 1 through 14 and a portion of 15, Block 20, Lots 1 through 7 , Block 21, Lots 1 through 7, Block 22, Lots 1 through 14, Lot 17 through 32, Block 24, Brentwood Heights, Medina Subdivision, portion of all streets, railroads, alleys, laterals within the above described parcels, City Of El Paso, County Of El Paso, Texas, save and except Lots 1 To 3, East 18.50 feet of Lot 6 all of Lots 7 through 11, Block 12, Tobin's Fourth and a 28.189 acre portion of E.R. Talley Survey No. 6 described in Volume 317, Page 520, real property records of El Paso County, Texas, from their current zoning district to Scz (Smartcode Zone), The penalty is as provided for in Chapter 21.60 of the El Paso City Code.		Omitted
17590	6-21-2011	An Ordinance vacating a portion of an alley being a 0.0136 acre parcel of land out of a 9.5 foot wide alley adjacent to Block 1, Map of Orchard Park Addition, City of El Paso, El Paso County, Texas.		Omitted
17591	6-21-2011	An Ordinance amending the 2025 Proposed Thoroughfare System as detailed in the Map Atlas of The Plan for El Paso and its related documents as originally approved by the El Paso City Council in 1999, and as subsequently amended, to add Plexxar as a north-south Collector Arterial with Bike Lanes, connecting the extensions of La Mesa Avenue and Hoover Avenue, across Trans Mountain Road, east of Resler Drive and west of the extension of Paseo del Norte Road.		Omitted
17592	6-21-2011	An Ordinance amending The Plan for El Paso and the year 2025 General Land Use Map by amending the Medical Center of the Americas Master Plan as a specific study area plan.		Omitted
17593	6-21-2011	An Ordinance granting a Special Privilege License to MCAmericas Realty, Inc. for the maintenance, and repair of three surface posts attached to the structure located at 440 Raynolds Boulevard located within portions of City right-of-way along Rosa Street for a term of ten years.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17594	6-28-2011	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.030 (Schedule III-Parking prohibited at all times on certain streets) of the El Paso City Code, by adding Kerbey Avenue between N. Florence Street and N. Virginia Street, both sides. The penalty being as provided in Section 12.84.010 of the El Paso City Code.	1 Added	12.88.030 450.
17595	6-28-2011	An Ordinance changing the zoning of Lots 4 and 5, Block 1, El Paso West Unit Two, Replat A, City of El Paso, El Paso County, Texas; and a portion of Lot 3, Block 1, El Paso West Unit Two, City of El Paso, El Paso County, Texas from M-1 (Manufacturing) to C-2 (Commercial) and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17596	6-28-2011	An Ordinance changing the zoning of the following real property known as: Parcel 1: a portion of Lot 3, all of Lots 4 thru 32, Block 1, all of Block 2, all of Billy Joe Circle and portions of Lisa Anne Way right-of-way and Robert Todd Way right-of-way, Desertaire Estates, City of El Paso, El Paso County, Texas, from R-5 (Residential) to C-1 (Commercial) and imposing a condition. Parcel 2: Lots 1 thru 8, Block 3, and a portion of Lisa Anne Way right-of-way and Robert Todd Way right-of-way, Desertaire Estates, City of El Paso, El Paso County, Texas from R-5 (Residential) to C-4 (Commercial) and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17597	6-28-2011	An Ordinance authorizing the City Manager to sign a Contract of Sale and any other necessary documents between the City of El Paso and the Housing Authority of the City of El Paso which will allow for the City to convey property commonly known as 8909 Old County Line Road, El Paso, El Paso County, Texas, including the improvements thereon.		Omitted
17598	7- 5-2011	An Ordinance granting Special Permit No. ZON11-00021, to allow for infill development and a parking reduction on the property described as Lots 15 and 16, Block 17, Franklin Heights Addition, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.320 of the El Paso City Code and repealing Special Permit ZON09-00074. The penalty being as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17599	7-12-2011	An Ordinance amending the 2025 Proposed Thoroughfare System as detailed in the Map Atlas of The Plan For El Paso and its related documents as originally approved by El Paso City Council in 1999, and as subsequently amended, to delete a portion of a proposed east-west minor arterial from Remcon Circle to the proposed extension of Belvidere Street, and to realign the east-west minor arterial and the proposed extension of Belvidere Street to connect from Mesa Street to Resler Drive.		Omitted
17600	7-19-2011	An Ordinance granting Special Permit No. ZON10-00046, to allow a Professional Office, Infill Development with reduced setbacks and a parking reduction on the property described as Lot 28, and the East 15 feet of Lot 27, Block 82, Franklin Heights, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.320 of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17601	7-19-2011	An Ordinance changing the zoning of a parcel of land out of Tract 1, Block 6, Christy Tract, City of El Paso, El Paso County, Texas from R-F (Ranch & Farm) to R-3 (Residential). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17602	7-19-2011	An Ordinance changing the zoning of a portion of Tract 19, of El Canutillo Acreage Tracts, City of El Paso, El Paso County, Texas from R-3 (Residential) to C-2 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17603	7-19-2011	An Ordinance amending Ordinance No. 017519, Title 9 (Health and Safety), Chapter 9.04 (Solid Waste Management) to amend the effective date of the Flow Control requirements; the penalty being as provided in Section 9.04.630 of the El Paso City Code.	1	Tit. 9, Ch. 9.04, Art. VII(note)
17604	7-19-2011	An Ordinance amendment related to Title 9 (Health and Safety), Chapter 9.04 (Solid Waste Management) amending 9.04.020 (Definitions); amending 9.04.070 (Collection Provider) to include triplex and quadriplex; and to clarify that Article VIII only references Designated Municipal Solid Waste Facility; the penalty being as provided in Section 9.04.630 of the El Paso City Code.	1	9.04.020
			2	9.04.070
			3	9.04.520 A.
17605	7-19-2011	An Ordinance granting a Special Privilege License to Management and Engineering Technologies International, Inc. for the construction, installation, maintenance and repair of 70 linear feet of subsurface fiber optic conduit and cables within portions of City right-of-way beneath Maca Street between Boeing Drive and Lockheed Street for a term of five years with two renewable five year terms.		Omitted
17606	7-26-2011	An Ordinance granting Special Permit No. PZST11-00006, to allow for infill development and a parking reduction on the property described as all of the North ½ of Lots 14, 15, and 16, Block 57, Supplemental Map No. 1, East El Paso Addition, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.320 of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17607	7-26-2011	An Ordinance changing the zoning of all of Tract 5, Block 14, Upper Valley Surveys, City of El Paso, El Paso County, Texas from R-2 (Residential) to G-MU (General-Mixed Use). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17608	7-26-2011	An Ordinance amending Title 13 (Streets Sidewalks and Public Places), Chapter 13.24 (City Parks and Recreation Areas), Section 13.24.050 (Use of Athletic Fields), to broaden the scope to include other types of athletic fields and to allow for designation by City Council of applicable athletic fields, and to create section 13.24.210 (Enforcement). The penalty as provided in City Code Section 13.24.050(c) of the City Code.	1	13.24.050
			2 Added	13.24.210
17609	8- 2-2011	An Ordinance changing the zoning of all of Tract 1A4, Section 45, Block 79, Township 2, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas from R-3 (Residential) to C-4 (Commercial) and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17610	8- 2-2011	An Ordinance to correct a clerical error in Ordinance No. 017303 approved on March 30, 2010, which rezoned several parcels of property.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17611	8- 2-2011	An Ordinance granting Special Permit No. PZST11-00004, to allow for a convenience store with gas pumps and approving a detailed site development plan on the property described as Lot M, Block 45, Mills Addition, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.260 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code.		Omitted
17612	8- 2-2011	An Ordinance changing the zoning of all of Lot 8, Block 3, Hueco View Acres, City of El Paso, El Paso County, Texas from R-3 (Residential) to A-1 (Apartment) and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17613	8- 2-2011	An Ordinance zoning Parcel 1: A portion of Section 37, Block 79, Township 2, Texas and Pacific Railway Company Surveys, El Paso County, Texas, to C-2 (Commercial), Parcel 2: A portion of Section 37, Block 79, Township 2, Texas and Pacific Railway Company Surveys, El Paso County, Texas to R-5 (Residential) and Parcel 3: A portion of Section 48, Block 79, Township 2, Texas and Pacific Railway Company Surveys, El Paso County, Texas to C-2 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17614	8- 2-2011	An Ordinance annexing the following real property described as a portion of Sections 37 and 48, Block 79, Sections 7 and 18, Block 78, Township 2, Texas and Pacific Railway Company Surveys, El Paso County, Texas.		Omitted
17615	8- 2-2011	An Ordinance granting Special Permit No. PZST11-00005, to allow for infill development for lot width and lot size reduction on the property described as Lot 39, Block 1, Alexander addition to Ysleta, City of El Paso, El Paso County, Texas, pursuant to section 20.04.320 of the El Paso City Code. The penalty being as provided for in chapter 20.24 of the El Paso City Code.		Omitted
17616	8- 2-2011	An Ordinance establishing deadlines and procedures for placing matters on the agenda for City Council Meetings and repealing Ordinance No. 16086.		Omitted
17617	8- 2-2011	An Ordinance granting a Special Privilege License to United Bank of El Paso Del Norte permitting the encroachment of seven canopies and 12 façade encroachments totaling 372.0 square feet over and along portions of City right-of-way located on Main Drive Kansas Street, and Campbell Avenue adjacent to 401 E. Main Drive.		Omitted
17618	8- 9-2011	An Ordinance granting a non-exclusive franchise to American Disposal Service, to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the terms and conditions described herein. The penalty as provided in Section 9.04.630 of the El Paso City Code.		Omitted
17619	8- 9-2011	An Ordinance granting a non-exclusive franchise to El Paso Disposal, LP, to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the terms and conditions described herein. The penalty as provided in Section 9.04.630 of the El Paso City Code.		Omitted
17620	8- 9-2011	An Ordinance granting a non-exclusive franchise to Heist Disposal, to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the terms and conditions described herein. The penalty as provided in Section 9.04.630 of the El Paso City Code.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17621	8- 9-2011	An Ordinance granting a non-exclusive franchise to Moore Service, Inc., to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the terms and conditions described herein. The penalty as provided in Section 9.04.630 of the El Paso City Code.		Omitted
17622	8- 9-2011	An Ordinance granting a non-exclusive franchise to Sandoval Capital, Inc. d/b/a Bronco Disposal, to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the terms and conditions described herein. The penalty as provided in Section 9.04.630 of the El Paso City Code.		Omitted
17623	8- 9-2011	An Ordinance granting a non-exclusive franchise to Jose Roman Gonzalez, Jr. d/b/a JRG Disposal Service, to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the terms and conditions described herein. The penalty as provided in Section 9.04.630 of the El Paso City Code.		Omitted
17624	8- 9-2011	An Ordinance authorizing the City Manager to sign a Special Warranty Deed conveying to the County of El Paso, land totaling 3.2564 acres of land consisting of a portion of Tracts 6-C and 6-B-1, Block 18, Upper Valley Surveys, El Paso County Texas as shown on a map of Block 18 by JW Carter and dated April 1930, and also being a portion of that parcel recorded in condemnation suit docket 15273 filed December 29, 1950, El Paso County District Clerk's Record. Said land located near Bosque and Campos Roads, in Northwest El Paso County.		Omitted
17625	8-16-2011	An Ordinance amending Title 20 (Zoning), Appendix B (Table of Density and Dimensional Standards), Subpart B (Lot and Dwelling size), of the El Paso City Code to revise the density regulations for apartments in the C-5 (Central Business District). The penalty is as provided for in Chapter 20.24 of The El Paso City Code.		Tit. 20, App. B
17626	8-16-2011	An Ordinance vacating a portion of the alley out of Block 12, Womble Addition, City of El Paso, El Paso County, Texas.		Omitted
17627	8-16-2011	An Ordinance granting a special privilege license to Mills Plaza Parking, LP, owner and El Paso Community Foundation, lessee for the construction, installation, maintenance, use and repair of one outdoor patio cafe within portions of City right-of-way along North Oregon Street adjacent to the property located at 401 N. Oregon Street and allowing the sale and service of alcoholic beverages as a permissible activity within the outdoor patio cafe area.		Omitted
17628	8-16-2011	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.030 (Schedule III - parking prohibited at all times on certain streets) of the El Paso City Code to amend and delete some of the existing locations.	1	12.88.030
17629	8-16-2011	An Ordinance granting a Special Privilege Permit to The Place At Union Plaza, Inc. permitting the encroachment of twelve awnings, one metal façade, and two handicap accessibility ramps within portions of City rights-of-way on Anthony Street and W. San Antonio Avenue adjacent to the property located at 518 San Antonio Avenue.		Omitted
17630	8-16-2011	An Ordinance amending Title 7 (Animals), Chapter 7.14 (Animal Sales, Breeding and Shows), to amend the effective date of certain retail animal sales restrictions; the penalty being as provided in Section 7.04.080 of the El Paso City Code.	1	7.14.020

Ordinance Number	Approval Date	Description	Section	Section this Code
17631	8-23-2011	An Ordinance authorizing the issuance of "City of El Paso, Texas, Combination Tax and Revenue Certificates of Obligation, Series 2011" and resolving matters which are necessary to effectuate said issuance, including a delegation of authority.		Omitted
17632	8-23-2011	An Ordinance authorizing the issuance of "City of El Paso, Texas, General Obligation Refunding Bonds, Series 2011;" and resolving matters which are necessary to effectuate said issuance, including a delegation of authority.		Omitted
17633	8-23-2011	An Ordinance levying FY 2012 taxes.		Omitted
17634	8-30-2011	An Ordinance to move the Animal Services function from the Department of Public Health to the Environmental Services Department by Amending Title 9 (Health and Safety), Chapter 9.02 (Department of Public Health), Section 9.02.010 (Creation and Purpose of the Department of Public Health); and Chapter 9.04 (Solid Waste Management), Section 9.04.010 (Creation and Purpose of the Department).	1	9.02.010
			2	9.04.010
17635	8-30-2011	An Ordinance amending Title 7 (Animals), Chapter 7.04 (Definitions and Administration), Section 7.04.040 (Definitions) to change all references from Director of the Department of Public Health to Director of the Department of Environmental Services and to delete all references to Deputy Director throughout Title 7 (Animals).	1	7.04.010 H.
				7.04.010 L.—N.
			2	7.04.020
			3	7.04.030 A.
				7.04.030 E.
			4	7.04.060
			5	7.04.100
			6	7.12.060 B.
			7	7.14.010 F.
			8	7.14.020 G.
			9	7.14.040
			10	7.14.080 D.
			11	7.14.090 D.
			12	7.16.020 F.
			13	7.20.010
			14	7.28.050 B.
			15	7.30.050 B.
17636	8-30-2011	An Ordinance amending Ordinance No. 017381 which set the fee structure for the Fire Department Medical Services System to delete the first free mile provision; the penalty as is provided in Section 9.52.030 of the El Paso City Code.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17637	8-30-2011	An Ordinance amending Chapter 2.64 (City Employees' Pension Fund) of the El Paso City Code, by amending various sections of the Chapter to create a second tier in the pension fund that will provide different benefits for persons who become fund participants on and after September 1, 2011; to clarify provisions concerning participation in the system and the payment of benefits; to revise the provisions relating to investments to conform with state law; to change the vesting periods for retirement, disability and death benefits; and to increase the rate of participant and employer contributions to the fund.	1	2.64.010
			2	2.64.120
			3	2.64.140
			4	2.64.180
			5	2.64.190
			6	2.64.200
			7	2.64.205
			8	2.64.210
			9	2.64.220
			10	2.64.230
			11	2.64.260
			12	2.64.280
17638	8-30-2011	An Ordinance changing the zoning of a portion of Tract 3A, Nellie D. Mundy, Survey No. 240, City of El Paso, El Paso County, Texas from A-2 (Apartment) to A-O (Apartment-Office). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17639	8-30-2011	An Ordinance granting Special Permit No. ZON11-00004, to allow for infill development and a parking reduction on the property described as Lot 15 and the East ½ of Lot 16, Block 223, Campbell's Addition, City of El Paso, El Paso County, Texas, Pursuant to Section 20.04.320 of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17640	8-30-2011	An Ordinance amending Title 20 (Zoning), Chapter 20.04 (Administrative Provisions), Article III (Detailed Site Development Plan Approval Process), Section 20.04.150 (Procedure) of the El Paso City Code to allow administrative approval of certain detailed site development plans. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.	1	20.04.150
17641	8-30-2011	An Ordinance changing the zoning of Lots 10 thru 13, Block 2 and a remnant portion of Latta Street, Block 1, Woodlawn Subdivision, City of El Paso, El Paso County, Texas from M-1 (Manufacturing) to C-3 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17642	8-30-2011	An Ordinance granting a Special Privilege License to Walter and Eva Parker permitting the encroachment of a 44.0 square foot portion of an existing staircase within portions of City right-of-way on Frutas Avenue adjacent to the property located at 3801 Frutas Avenue, NESV11-00029.		Omitted
17643	9-20-2011	An Ordinance changing the zoning of Tract 7E3, Block 34, Ysleta Grant, City of El Paso, El Paso County, Texas from R-F (Ranch & Farm) to C-1 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17644	9-20-2011	An Ordinance changing the zoning of a portion of Tract 4B, Section 38, Block 79, Township 2, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas from A-2 (Apartment) to C-1 (Commercial), and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17645	9-20-2011	An Ordinance changing the zoning of a 1.174 acre (51,124 square feet) tract of land being all of Lots 1 thru 9, all of Lots 48 thru 52, all of Lot 14, a portion of Lots 10, 11, 12, 13 and 47, and a portion of a vacated alley all within Block I, Alamo Heights Addition, City of El Paso, El Paso County, Texas from R-4 (Residential) to R-4/H (Residential/Historic Overlay). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17646	9-20-2011	An Ordinance changing the zoning of a portion of Tract 3, Kilpatrick Subdivision, City of El Paso, El Paso County, Texas from R-F (Ranch-Farm) to C-1 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17647	9-20-2011	An Ordinance changing the zoning of all of Lot 19, Block 2, Franklin Village Amending Plat, City of El Paso, El Paso County, Texas from R-3A (Residential) to R-MU (Residential-Mixed Use). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17648	9-20-2011	An Ordinance granting a Special Privilege License to Sprint Communications Company L.P. for the construction, installation, maintenance, and repair of 1,428 linear feet of subsurface fiber optic conduit and cables for long-distance telecommunications systems within portions of City right-of-way along Mesa Hills Drive between Mesa Street and Doniphan Park Drive for a term of five years with two renewable five year terms.		Omitted
17649	9-20-2011	An Ordinance amending Title 9 (Health and Safety), Chapter 9.12 (Food and Food Handling Establishments), to allow for the issuance of a food handler certificate rather than a food handler card and a food protection management certificate rather than a food protection management card in all applicable sections; the penalty as provided in Section 9.12.890.	1	9.12.130
			2	9.12.140
			3	9.12.150
			4	9.12.170
			5	9.12.180
			6	9.12.190
			7	9.12.210
			8	9.12.220
			9	9.12.230
			10	9.12.235
			11	9.12.240
			13	9.12.260
			14	9.12.600
			15	9.12.810
			16	9.12.840
			17	9.12.850

Ordinance Number	Approval Date	Description	Section	Section this Code
			18	9.12.875
17650	9-27-2011	An Ordinance changing the effective date of Ordinance No. 017575 which revised Title 18 (Building and Construction), Chapter 18.46 (Landscape), of the El Paso City Code, from October 3, 2011 to November 7, 2011. The penalty is as provided for in Section 18.46.180 of the El Paso City Code.		18.46.010—18.46.060,
				18.46.070—18.46.090,
				18.46.100—18.46.140,
				18.46.200, 18.46.210
				18.46.300—18.46.340
17651	10- 4-2011	An Ordinance changing the zoning of Lot 1, Block 1, Paisano Green Community, City of El Paso, El Paso County, Texas from A-3 (Apartment) to G-MU (General Mixed Use). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17652	10- 4-2011	An Ordinance changing the zoning of Lot 2, Block 2, Keystone Business Park Replat A, City of El Paso, El Paso County, Texas from P-I/sc (Planned Industrial/special contract) to C-3/sc (Commercial/special contract) and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17653	10- 4-2011	An Ordinance changing the zoning of a portion of Tract 2C1, Block 35, Ysleta Grant, City of El Paso, El Paso County, Texas from A-M (Apartment/Mobile Home Park) to C-2 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17654	10-18-2011	An Ordinance changing the zoning of the following real property known as: Parcel 1: Lot 25 and a portion of Lot 24, Block 1, Colonia Verde, City of El Paso, El Paso County, Texas, from R-4 (Residential) to C-2 (Commercial) and imposing a condition. Parcel 2: Lot 1, Block 35, Colonia Verde Unit Six, City of El Paso, El Paso County, Texas from C-1/sc (Commercial/special contract) to C-2/sc (Commercial/special contract) and imposing a condition. The penalty is as provided for in chapter 20.24 of the El Paso City Code.		Omitted
17655	10-18-2011	An Ordinance releasing all conditions placed on property by Ordinance No. 5941 which changed the zoning of a portion of Lots 1 and 2, Block 10, Pecan Grove Subdivision Unit-2, City of El Paso, El Paso County, Texas, and which imposed conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17656	10-18-2011	An Ordinance amending Title 18 (Building and Construction), Chapter 18.46 (Landscape) of the El Paso City Code, to modify the definition of landscapable area, reduce the required number of one gallon plant materials, reduce the height of one inch caliper project tree substitutions, allow project tree substitutions for five gallon plant materials, reduce the frontage landscape buffer for certain shopping centers, adopt a designated landscape infill development area, reduce the landscape requirements for properties within the area, and add a plant coverage option. The penalty being as provided in Section 18.46.180 (Violations - Penalty) of the El Paso City Code.	1	18.46.050
				18.46.060 A.6.b.
			Added	18.46.060 A.6.d.
				18.46.090 A.1.c.
				18.46.090 A.1.d.
			Added	18.46.090 A.1.g.
			Added	18.46.090 A.4., 5.

Ordinance Number	Approval Date	Description	Section	Section this Code
17657	10-18-2011	An Ordinance granting Special Permit No. PZST11-00008, to allow for a ground-mounted 75 foot Personal Wireless Service Facility on the property described as Tract 1M, Section 28, Block 81, Township 1, Texas and Pacific Railway Surveys, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.455 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code.		Omitted
17658	10-18-2011	An Ordinance granting a Special Privilege License to J.D. Abrams, LP. for the construction, installation, maintenance and repair of a 115 linear foot subsurface HMAC TY C temporary water line within portions of City right-of-way beneath George Orr Road between Ben Swain Drive and Highway LP375 (Cesar Chavez Highway) for a term of five years with one renewable five year term.		Omitted
17659	10-18-2011	An Ordinance amending Title 18 (Building and Construction), Chapter 18.10 (Residential Code), of the El Paso City Code, by adding Section 18.10.265 (Protection of Water Service Entrance) and Section 18.10.266 (Plumbing within exterior walls) to help prevent pipes from freezing during severe weather, the penalty being as provided in Section 18.02.107 (Violations and Penalties) of the El Paso City Code.	1 Added	18.10.265
			2 Added	18.10.266
17660	10-18-2011	An Ordinance amending Title 18 (Building and Construction), Chapter 18.20 (Plumbing Code), of the El Paso City Code, by adding Section 18.20.240 (Protection of Water Service Entrance) and Section 18.20.250 (Plumbing within exterior walls) to help prevent pipes from freezing during severe weather, the penalty being as provided in Section 18.02.107 (Violations and Penalties) of the El Paso City Code.	1 Added	18.20.240
			2 Added	18.20.250
17661	10-18-2011	An Ordinance amending Title 18 (Building and Construction), Chapter 18.28 (Existing Building Code), of the El Paso City Code, by adding Section 18.28.060 (Plumbing Repairs) to help prevent pipes from freezing during severe weather, the penalty being as provided in Section 18.02.107 (Violation and Penalties) of the El Paso City Code.	1 Added	18.28.060
17662	10-18-2011	An Ordinance amending Title 18 (Building and Construction), Chapter 18.02 (Building and Construction Administrative Code) Section 18.02.108.5.1 (Bond Required), of the El Paso City Code, decreasing the required bond amount for contractors from $50,000 to $25,000 and allowing for additional exceptions to the $25,000 bond requirement, the penalty being as provided in Section 18.02.107 (Violations and Penalties) of the El Paso City Code.	1	18.02.108.5.1
17663	10-18-2011	An Ordinance granting a non-exclusive franchise to Cemex Construction Materials South, LLC, to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the terms and conditions described herein; the penalty as provided in Section 9.04.630 of the El Paso City Code.		Omitted
17664	10-25-2011	An Ordinance amending Title 13 (Streets, Sidewalks and Public Places), Chapter 13.24 (City Parks and Recreation Areas), Section 13.24.040 (Hours of Closure); to allow the City Council by Resolution to extend the closing hours of parks and park facilities; the penalty being as provided in Sections 1.08.010 through 1.08.030 of the City Code.	1	13.24.040
17665	11- 1-2011	An Ordinance changing the zoning of a portion of Lot 1, Block 34, Tierra Del Este Unit Five, City of El Paso, El Paso County, Texas from R-3A (Residential) to C-1 (Commercial). The penalty is as provided for in chapter 20.24 of the El Paso City Code.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17666	11- 1-2011	An Ordinance amending Title 2 (Administration and Personnel), Chapter 2.16 (Zoning Board of Adjustment), Section 2.16.050 (Special Exceptions), of the El Paso City Code to amend the special exceptions for front and side street yard setbacks, duplex and single-family rear yard setbacks, carport over a driveway, and to delete the special exception for condemnation or eminent domain. The penalty is as provided in Chapter 20.24 (Enforcement-Penalty) of the El Paso City Code.	2	2.16.050 C.
			3	2.16.050 D.
			4	2.16.050 F.
			5 Rpld	2.16.050 J.
			6 Rnbd	2.16.050 K.
			as	2.16.050 J.
			7 Rnbd	2.16.050 L.
			as	2.16.050 K.
			8 Rnbd	2.16.050 M.
			as	2.16.050 L.
17667	11- 1-2011	An Ordinance amending Title 2 (Administration and Personnel) Chapter 2.16 (Zoning Board of Adjustment), Section 2.16.020 (Powers), Section 2.16.030 (Variances) and Section 2.16.060 (Administration) of the El Paso City Code to add the authority to approve variances specified in Title 21 (SmartCode) of the El Paso City Code.	1	2.16.020 B.
			2	2.16.030
			3	2.16.060 A.
				2.16.060 D.
17668	11- 1-2011	An Ordinance granting Special Permit No. ZON11-00003, to allow for Infill Development with Reduced Setbacks and a Parking Reduction on the property described as a portion of Lots 3 and 4, Block 6, Del Norte Acres, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.320 of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17669	11- 1-2011	An Ordinance vacating all of Crinco Lane within Barnett Harley-Davidson Subdivision and Loma Terrace Addition No. Four-D, City of El Paso, El Paso County, Texas.		Omitted
17670	11- 1-2011	An Ordinance amending Title 15 (Public Services) Chapter 15.22 (Water and Wastewater Impact Fees) of the El Paso City Code to delete Section 15.22.170 (Certification of Compliance). The penalty being as provided in Chapter 1.08, General Penalty, of the El Paso City Code.	1 Rpld	15.22.170
17671	11- 1-2011	An Ordinance vacating a utility easement measuring 10 feet in width, located within a portion of Lots 1 and 2, Block 1, International Industrial Center, City of El Paso, El Paso County, Texas.		Omitted
17672	11- 1-2011	An Ordinance amending Title 18 (Building & Construction), Chapter 18.02 (Building and Construction Administrative Code) Section 18.02.108.5.2. (Bond Requirements), of the El Paso City Code, decreasing the term of the required bond from two years to one year, the penalty being as provided in Section 18.02.107 (Violations and Penalties) of the El Paso City Code.	1	18.02.108.5.2
17673	11- 1-2011	An Ordinance amending Title 9 (Health and Safety), Chapter 9.52 (Fire Prevention Code), Section 9.52.020 (Adopted), 105.6 (Operational Permits) by adding Subsection 105.6.52 (Outside Storage of combustible Material); the penalty as provided in El Paso City Code Subsection 9.52.030.19 (Violation Penalties).	1, 2	9.52.030

Ordinance Number	Approval Date	Description	Section	Section this Code
17674	11- 8-2011	An Ordinance amending the Final Project Plan and Final Reinvestment Zone Financing Plan for Tax Increment Reinvestment Zone Number Five, City of El Paso, Texas; adopting said amendments as required by Section 311.011(E) Texas Tax Code; also providing a severability clause.		Omitted
17675	11-15-2011	An Ordinance releasing all conditions placed on property by Ordinance No. 9264 which changed the zoning of a portion of Lot 2, Block 5, Mesa Hills Plaza, City of El Paso, El Paso County, Texas, and which imposed conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17676	11-15-2011	An Ordinance amending Title 15 (Public Services) to amend Chapter 15.08 to add Section 15.08.011 (Definitions) to define terms; and to amend Section 15.08.120 (Special Privilege Licenses and Permits), to clarify the process and timeline for filing an appeal, to make the City Manager the appeals official; and to identify the Downtown Management District as the entity to which applicants seeking a special privilege permit for events in the Downtown Improvement Area must submit their application.	1 Added	15.08.011
			2	15.08.120 A.1.
			3	15.08.120 D.1.—4.
			4	15.08.120 L.1.
17677	11-29-2011	An Ordinance to correct a clerical error in Ordinance No. 017018 approved on November 4, 2008, which granted a special permit to allow for a planned residential development on a portion of Tract 10A, 11A, 12A, and 13A, Block 54, Ysleta Grant, City of El Paso, El Paso County, Texas.		Omitted
17678	11-29-2011	An Ordinance granting a Special Privilege License to J.D. Abrams, LP. for the construction, installation, maintenance and repair of a 380 linear foot subsurface HMAC TY C temporary water line within portions of City right-of-way beneath Flower Drive between Francis Street and Modesto Gomez Park and a portion of Modesto Gomez Park between Flower Drive and Highway Loop 375 (Cesar Chavez Highway) for a term of five years with one renewable five year term.		Omitted
17679	11-29-2011	An Ordinance authorizing the City Manager to sign a Contract of Sale, Special Warranty Deed and any other necessary documents between the City of El Paso and Jobe Materials, L.P., the sole bidder, which will allow the City to convey to Jobe Materials, L.P. land held in Trust by the El Paso Water Utilities Public Service Board of Trustees totaling 10.14 acres of land being a portion of Section 17, Block 81, Township 2, City of El Paso, El Paso County, Texas, located in northeast El Paso at Fred Wilson and Marshall Roads.		Omitted
17680	11-29-2011	An Ordinance amending Title 9 (Health And Safety), Chapter 9.52 (Fire Prevention Code), Section 9.52.130 (Chapter 33, Explosives and Fireworks, amended) to change the effective date of the discontinuance and abatement of any prior variance or exception to the fireworks ban; the penalty as provided in Section 9.52.030 of the El Paso City Code.	1	9.52.130
17681	12- 6-2011	An Ordinance annexing the following real property described as all of Tract 2F, being a portion of Section 46, Block 79, Township 2, Texas and Pacific Railway Company Surveys, El Paso County, Texas and a portion of the rights-of-way of Zaragosa Road, Gambusino Avenue and Azogue Avenue. Subject Property: east of Zaragoza Road and south of Gambusino Avenue, Property Owner: River Oaks Properties, Ltd. AN08-002 (SUB08-00090)		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17682	12- 6-2011	An Ordinance annexing the following real property described as all of Tract 7, Section 25, Block 79, Township 2, Texas and Pacific Railroad Surveys, El Paso County, Texas and being a portion of the rights-of-way of Montana Avenue and Zaragosa Road. Subject Property: north of Zaragosa Road and south of Montana Avenue. Property Owner: River Oaks Properties, Ltd. AN08-005 (SUB08-00093)		Omitted
17683	12- 6-2011	An Ordinance changing the zoning of all of Tract 2F, being a portion of Section 46, Block 79, Township 2, Texas and Pacific Railway Company Surveys, El Paso County, Texas and a portion of the rights-of-way of Zaragoza Road, Gambusino Avenue and Azogue Avenue from R-F (Ranch and Farm) to C-4 (Commercial), and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: east of Zaragoza Road and south of Gambusino Avenue. Property Owner: River Oaks Properties, Ltd. PZRZ11-00037		Omitted
17684	12- 6-2011	An Ordinance changing the zoning of all of Tract 7, Section 25, Block 79, Township 2, Texas and Pacific Railroad Surveys, El Paso County, Texas and being a portion of the rights-of-way of Montana Avenue and Zaragoza from R-F (Ranch and Farm) to C-4 (Commercial), and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: south of Montana Avenue and west of Zaragoza Road. Property Owner: River Oaks Properties, Ltd. PZRZ11-00038		Omitted
17685	12- 6-2011	An Ordinance granting Special Permit No. PZST11-00009, to allow for transitional housing on the property described as Lots 14-18, Block 117, Campbell's Addition, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.320 of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 510 S. Oregon Street. Property Owner: 510 S Oregon LLC. PZST11-00009		Omitted
17686	12- 6-2011	An Ordinance amending Title 20 (Zoning), Chapter 20.02 (General Provisions and Definitions) and Chapter 20.18 (Sign Regulations) of the El Paso City Code to add a definition and establish standards for temporary real estate banners, and to amend other standards for both on premise and off premise signs. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.	1	20.02.978
			2 Added	20.18.100 H.
			Added	20.18.220 C.
				20.18.400 A.8.
				20.18.400 A.9.
				20.18.400 A.11.
				20.18.410
				20.18.430 B.3.
			Added	20.18.500 H.
				20.18.510 B.a.
17687	12- 6-2011	An Ordinance changing the zoning of Tract 4B1 and 4B2, Block 2, Ascarate Grant, City of El Paso, El Paso County, Texas from M-1 (Manufacturing) to C-4 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 1000 Robert E. Lee Road. Property Owner: W. W. Paddy Littlefield. PZRZ11-00044		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17688	12- 6-2011	An Ordinance changing the zoning of a portion of Block P-4, portion of 20' alley and portion of Block P-3, Garden Subdivision, City of El Paso, El Paso County, Texas from A-3/sp (Apartment/special permit) to S-D (Special Development) and removing a Special Permit placed on the property. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 2914 Paisano Drive. Property Owner: International Communications of El Paso, Inc. PZRZ11-00042		Omitted
17689	12- 6-2011	An Ordinance amending Title 14 (Aircraft and Airports), Chapters 14.04 (General Provisions and Definitions) and 14.20 (Airport Vehicular Traffic Regulations), to amend sections thereunder to clarify the penalties under the title and provide that parking violations are civil violations; and to delete Section 14.20.250 (Meters); the penalty being as provided in Section 14.04.040, Sections 1.08.010 - 1.08.030, and Chapter 12.85 of the El Paso City Code.	1	14.04.040
			2	14.20.240
			3 Rpld	14.20.250
17690	12- 6-2011	An Ordinance amending Title 12 (Vehicles and Traffic) to amend various sections thereunder: to revise the provisions relating to granting parking enforcement authority under the title; to properly reference state statutory and city code provisions and the establishment of fees; to update the provisions relating to parking in special situations; to clarify the fee exemption for disabled parking at parking meters; to clarify the penalties for parking, standing and stopping violations in the city code and clarify which provisions within Title 12 are penal violations; and to clarify the dates and times at which a parking ticket hearing can be requested; the penalty being as provided in Section 12.84.010 and Chapter 12.85 of the El Paso City Code.	1 Rpld	12.08.045
			2	12.08.140
			3	12.08.220 D.
			4	12.08.230
			5 Rpld	12.44.010 E., F.
			6	12.44.060
			7 Rpld	12.44.070
			8	12.44.090
			9	12.44.160
			10	12.44.170
			11	12.44.180 A.
			12	12.44.180 B.11.
			13	12.44.180 B.28.c.i.
			14	12.44.200
			15	12.44.220
			16	12.44.230
			17	12.44.240
			18	12.44.250
			19 Rpld	12.48.070
			20	12.56.030
			21	12.56.040
			22	12.56.080
			23	12.56.090
			24	12.68.040
			25 Added	12.80.230
			26	12.84.010
			27	12.85.010
			28	12.85.030
			29	12.85.110

Ordinance Number	Approval Date	Description	Section	Section this Code
17691	12- 6-2011	An Ordinance amending Title 5 (Business taxes, Licenses and Regulations) of the El Paso City Code, by repealing Title 5 in its entirety and adopting a new Title 5 in its place, the penalty being as provided in Chapter 1.08 of the El Paso City Code.	1 Rpld	Chs. 5.04—5.112
			Added	Chs. 5.01—5.16
17692	12-13-2011	An Ordinance to tax tangible personal property in transit held temporarily at a location in El Paso, Texas, which would otherwise be exempt pursuant to Texas Tax Code Section 11.253 and repeal ordinance No. 16798.		Omitted
17693	12-20-2011	An Ordinance changing the zoning of Tract 6, Section 29, Block 80, Township 1, Texas and Pacific Railroad Company Surveys, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) to C-2 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 11145 Dyer Street. Property Owner: Beverly M. Stipe. PZRZ11-00051		Omitted
17694	12-20-2011	An Ordinance changing the zoning of portions of Tract 1A1 and 3B5, Section 41, Block 80, Township 1, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas from M-1 (Manufacturing) to C-4 (Commercial), and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: Railroad Drive at Trans Mountain Road. Property Owner: Transmt-Rail, LLC. PZRZ11-00035		Omitted
17695	12-20-2011	An Ordinance changing the zoning of Lots 12, 13, 14 save & except that portion of Lot 13 previously conveyed to the State of Texas in warranty deed recorded in Volume 211, Page 313, Real Property Record, Block 52, Map No 2. of Government Hill Addition, City of El Paso, El Paso County, Texas from R-4 (Residential) to A-O (Apartment/Office) and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 4131 Trowbridge Drive. Applicant: Gateway Mission Training & Conference Center, Inc. PZRZ11-00036		Omitted
17696	12-20-2011	An Ordinance granting a lease to Transtelco, Inc. of a portion of the City's existing underground Conduit System in Downtown and South El Paso for a fiber optic cable telecommunications system. The following consideration is to be paid to the City: Annual Lease Fee $12,524.70.		Omitted
17697	12-20-2011	An Ordinance granting a license to Transtelco, Inc. to construct, maintain and use a single conduit innerduct on the Stanton Street International Bridge property for the purpose of installing fiber optic cable for its telecommunications network; the following consideration is to be paid to the City: Annual License Fee $25,526, and Annual Bridge Fee $7,068. Fees shall be subject to a 5% annual escalation.		Omitted
17698	12-20-2011	An Ordinance relating to the creation of a temporary division of Municipal Court Number Five.		Omitted
17699	12-20-2011	An Ordinance amending Title 14 (Aircraft and Airports) of the El Paso City Code, to add a new Section 14.16.161 (Customer Facility Charge) which charge will be paid by each customer renting a motor vehicle from an On-Airport Vehicle Rental Concessionaire.	1 Added	14.16.161
17700	12-20-2011	An Ordinance to amend Title 12 (Vehicles and Traffic), Chapter 12.54 (Towing Regulations and Fees) to amend Section 12.54.060 (Fees for Police Ordered Towing Services - Impoundment) to add a section providing for an impoundment fee as allowed by state law; the penalty being as provided in Section 12.84.010B of the El Paso City Code.	1	12.54.060

Ordinance Number	Approval Date	Description	Section	Section this Code
17701	1- 3-2012	An Ordinance amending Title 21 (SmartCode), Chapter 21.80 (Tables) of the El Paso City Code to modify standards for the T4O transect (General Urban Zone - Open) to increase the height and number of building stories allowed in T4O. The penalty is as provided for in Chapter 21.60 of the El Paso City Code.	1(Exh. A)	21.80.170
			1(Exh. B)	21.80.200
17702	1- 3-2012	An Ordinance authorizing the City Manager to execute a quitclaim (tax resale) deed conveying all right, title and interest in real property described as Tract 7-1, (0.833 acre) and Tract 7-K-1 (0.325 acre) and Tract 7-L-1-B (0.009 acre), Block 35; Ysleta, an addition to the City of El Paso, El Paso County, Texas to City of El Paso.		Omitted
17703	1-10-2012	An Ordinance authorizing the issuance of "City of El Paso, Texas, Water and Sewer Revenue refunding Bonds, Series 2012;" and resolving matters which are necessary to effectuate said issuance, including the delegation of matters relating to the sale and issuance of the Bonds to an authorized City officer or employee within certain specified parameters.		Omitted
17704	1-17-2012	An Ordinance changing the zoning of all of North Hills Unit Eight, City of El Paso, El Paso County, Texas from R-5/sc/c (Residential/special contract/condition) to R-MU (Residential Mixed Use). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: north of Marcus Uribe Drive and east of Martin L. King Jr. Drive. Property Owner: North Hills Housing I, LP. PZRZ11-00049		Omitted
17705	1-17-2012	An Ordinance releasing all conditions placed on property by Ordinance No. 8953 and Ordinance No. 9647 which changed the zoning of all of North Hills Unit Eight, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: north of Marcus Uribe Drive and east of Martin L. King Jr. Drive. Property Owner: North Hills Housing I, LP. PZCR11-00003		Omitted
17706	1-17-2012	An Ordinance changing the zoning of Lots 80 and 81, Sunrise Acres No. 2, City of El Paso, El Paso County, Texas from R-4 (Residential) to R-MU (Residential-Mixed Use). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: east of Mount Latona Drive and north of Atlas Drive. Property owner: Adobe Haciendas, Inc. PZRZ11-00039		Omitted
17707	1-17-2012	An Ordinance changing the zoning of Tracts 154 and 155, Sunrise Acres No. 2, City of El Paso, El Paso County, Texas from R-4 (Residential) to R-MU (Residential-Mixed Use). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: east of Mount Latona Drive and north of Vulcan Drive. Property owner: Adobe Haciendas, Inc. PZRZ11-00040		Omitted
17708	1-17-2012	An Ordinance granting a Special Privilege License to Mary Stillinger and Enriqueta Godinez permitting the maintenance and repair of a 2,199 square foot portion of an existing masonry wall with wrought iron fencing within portions of City right-of-way on Farrell Drive between Cindy Drive and Kathy Drive and Kathy Drive between Stevens Road and Farrell Drive adjacent to the property located south of Americas Avenue and east of Kathy Drive legally described as Lots 15 and 16 Richard Lee Subdivision, City of El Paso, El Paso County, Texas for a term of five years. (NESV11-00040)		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17709	1-17-2012	An Ordinance changing the zoning of Lots 15 and 16, Richard Lee Subdivision, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) to R-MU (Residential -Mixed Use). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: south of Americas Avenue and east of Kathy Road. Property owner: Mary Stillinger and Enriqueta Godinez. PZRZ11-00031		Omitted
17710	1-17-2012	An Ordinance to amend Title 12 (Vehicles and Traffic), Section 12.44.280 (Restrictions on parking in residential parking districts) to revise the provisions regarding the issuance of permits, and clarify the effect of holding a permit and the penalties for parking in violation of the section; the penalty being as provided in Section 12.84.010 and Chapter 12.85 of the El Paso City Code.	1	12.44.280
17711	1-17-2012	An Ordinance granting a Non-Exclusive Franchise to Loretto Investment Corporation, to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the terms and conditions described herein. The penalty as provided in Section 9.04.630 of the El Paso City Code.		Omitted
17712	2- 7-2012	An Ordinance annexing the following real property described as a portion of Lot 1, Gateway Estates, El Paso County, Texas, as filed and recorded in Volume 41, page 13b, Plat records of El Paso County, Texas and a portion of the rights-of-way of Windermere Avenue, Brandywine Road and Joe Battle Boulevard. Subject Property: east of Joe Battle Boulevard and south of Windermere Avenue, Property Owner: River Oaks Properties, Ltd. AN08-004 (SUB08-00092)		Omitted
17713	2- 7-2012	An Ordinance annexing the following real property described as a portion of Tract 1, Section 35, Block 79, Township 2, Texas and Pacific Railroad Surveys, El Paso County, Texas, and a portion of the rights-of-way of Montana Avenue, (U.S. Hwy 62-180), and Zaragosa Road. Subject Property: north of Zaragoza Road and south of Montana Avenue, Property Owner: River Oaks Properties, Ltd. AN08-006 (SUB08-00094)		Omitted
17714	2- 7-2012	An Ordinance annexing the following real property described as all of Tract 1, Section 38, Block 79, Township 2, Texas and Pacific Railroad Surveys, El Paso County, Texas, and a portion of the rights-of-way of Edgemere Boulevard and Zaragosa Road (F.M. 659). Subject Property: northwest of Zaragoza Road and south of Edgemere Boulevard, Property Owner: River Oaks Properties, Ltd. AN08-008 (SUB08-00096)		Omitted
17715	2- 7-2012	An Ordinance changing the zoning of a portion of Lot 1, Gateway Estates, El Paso County, Texas, as filed and recorded in Volume 41, page 13b, Plat records of El Paso County, Texas and a portion of the rights-of-way of Windermere Avenue, Brandywine Road, and Joe Battle Boulevard from R-F (Ranch and Farm) to C-3 (Commercial), and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: east of Joe Battle Boulevard and south of Windermere Avenue. Applicant: River Oaks Properties, Ltd. PZRZ11-00034		Omitted
17716	2- 7-2012	An Ordinance changing the zoning of a portion of Tract 1, Section 35, Block 79, Township 2, Texas and Pacific Railroad Surveys, El Paso County, Texas, and a portion of the rights-of-way of Montana Avenue and Zaragoza Road from R-F (Ranch and Farm) to C-4 (Commercial), and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: north of Zaragoza Road and south of Montana Avenue. Applicant: River Oaks Properties, Ltd. PZRZ11-00045		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17717	2- 7-2012	An Ordinance changing the zoning of all of Tract 1, Section 38, Block 79, Township 2, Texas and Pacific Railroad Surveys, El Paso County, Texas, and a portion of the right-of-way of Edgemere Boulevard and Zaragoza Road from R-F (Ranch and Farm) to C-3 (Commercial), and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: north of Zaragoza Road and south of Edgemere Boulevard. Applicant: River Oaks Properties, Ltd. PZRZ11-00041		Omitted
17718	2- 7-2012	An Ordinance changing the zoning of a portion of Nellie D. Mundy Survey 241, City of El Paso, El Paso County, Texas from R-3 (Residential) to C-3 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 6380 Berringer Street. Applicant: TGK Artcraft, LLC. PZRZ11-00046		Omitted
17719	2- 7-2012	An Ordinance changing the zoning of a portion of Tract 20-C, J.L. Johannsen Survey No. 185, City of El Paso, El Paso County, Texas from R-3 (Residential) to C-4 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 6010 Doniphan Drive. Applicant: Warren M. and Theresa F. Pulner. PZRZ11-00054		Omitted
17720	2- 7-2012	An Ordinance granting Special Permit No. PZST11-00015, to allow for infill development with reduced cumulative setbacks on the property described as Lot 5, Block 3, Emerald Valley Estates Replat A, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 5520 Milray Drive. Property Owner: Luis Villareal. PZST11-00015		Omitted
17721	2- 7-2012	An Ordinance amending Title 20 (Zoning), Chapter 20.18 (Sign Regulations) of the El Paso City Code to revise standards for manufacturer identification signs in C-3 and C-4 Zoning Districts. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.	1	20.18.45 A., B.
17722	2- 7-2012	An Ordinance granting Special Permit No. PZST11-00012, to allow for infill development with reduced yard setbacks and reduced lot width on the property described as Lot 23 and the East 16.67 feet of Lot 24, Block 62, East El Paso Addition, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 3118 Missouri Avenue. Property Owner: Frank Jr. and Maria G. Dominguez. PZST11-00012		Omitted
17723	2- 7-2012	An Ordinance amending a condition placed on property by Ordinance No. 016588 which changed the zoning of a portion of H.G. Foster Survey 262, City of El Paso, El Paso County, Texas, and which imposed a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: East of the intersection of Franklin Dove Avenue and Franklin Bluff Drive. Property Owner: Hunt Communities, GP, LLC. PZCR11-00004		Omitted
17724	2- 7-2012	An Ordinance vacating the vehicular access to a portion of Upson Avenue and Missouri Street, all of Block Q out of Satterthwaite Addition an unrecorded plat, City of El Paso, El Paso County, Texas. Applicant: City of El Paso. SURW11-00008		Omitted
17725	2- 7-2012	An Ordinance providing for a one hundred per cent reduction of certain fees specified in Title 18, Title 19, and Title 20 of the El Paso City Code for a period of ten years for property development located in the Downtown 2015 Plan Area.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17726	2- 7-2012	An Ordinance amending Title 18 (Building and Construction), Chapter 18.08 (Building Code), Section 18.08.070 (Fences), of the El Paso City Code, to amend the requirements and standards for electrified fences, the penalty being as provided in Section 18.02.107 (Violations and Penalties) of the El Paso City Code.	1	18.08.070
17727	2- 7-2012	An Ordinance granting a Special Privilege License to Joe Rosales permitting the encroachment of an 8 foot by 11 inch existing staircase within portions of City right-of-way on South Oregon Street adjacent to the property located at 510 South Oregon Street. NESV11-00051		Omitted
17728	2-21-2012	An Ordinance authorizing the City Manager to sign a lease agreement between the City of El Paso and Young Women's Christian Association (YWCA) El Paso Del Norte Region, for the lease of the property at 9135 Stahala Drive, El Paso, Texas, for a term of 15 years, which can be renewed for three additional five year terms.		Omitted
17729	2-21-2012	An Ordinance amending Ordinance No. 016749 which established a policy regarding sales and use tax rebates within the area covered by the Downtown 2015 Plan to amend the sunset provision, reduce the expenditure amount, and add a new qualification criterion.		Omitted
17730	2-21-2012	An Ordinance vacating a 0.115 acre portion of Resler Drive Right-Of-Way, City of El Paso, El Paso County Texas. SURW11-00005 Applicant: Cimarron Hunt Communities, LLC		Omitted
17731	2-21-2012	An Ordinance changing the zoning of Lots 3 and 4, Block 9, Montecillo Unit Three Replat A, City of El Paso, El Paso County, Texas from C-2 (Commercial) to SCZ (SmartCode Zone). The penalty is as provided for in Chapter 21.60 of the El Paso City Code. Subject Property: south of Castellano Drive, north of Executive Center, east of Interstate 10; and west of Mesa Street, Property Owner: EPT Mesa Development, LP. PZRZ11-00052		Omitted
17732	2-21-2012	An Ordinance amending Title 15 (Public Services), Chapter 15.08 (Street Rentals), Section 15.08.120 (Special Privilege Licenses and Permits), of the El Paso City Code, to amend the criteria for the exception requirements for temporary signs located in the public right-of-way; the penalty being as provided in Section 15.08.125 and Chapter 1.08 of the El Paso City Code. (All Districts)	1	15.08.120 G.11.
17733	2-21-2012	An Ordinance amending Title 12 (Vehicles and Traffic) to amend Chapter 12.88.180 (No Stopping or Standing - Tow Away Zone), of the El Paso City Code, to remove Paragraph 111 (Oregon Street between Yandell Drive and Glory Road), and to amend Chapter 12.88.030 (Parking Prohibited At All Times) to add Oregon Street between Yandell Drive and Glory Road, the penalty being as provided in Section 12.84.010 and Chapter 12.85 of the El Paso City Code.	1 Rpld	12.88.180 A.111.
			Rnbd	12.88.180 A.112., 113.
			as	12.88.180 A.111., 112.
			2	12.88.030 375.

Ordinance Number	Approval Date	Description	Section	Section this Code
17734	2-21-2012	An Ordinance amending Title 12 (Vehicles and Traffic) Section 12.44.180 (regulations pertaining to certain special situations), of the El Paso City Code, to convert and increase the number of parking spaces around and in the proximity of the El Paso County Courthouse for El Paso Police Department vehicle parking only; to delete Hotel, Sun City Area Transit and Oregon Street zone regulations; and to revise the provision regarding renting parking meters to correctly reference the existing scheduled fee; the penalty being as provided in Section 12.84.010 and Chapter 12.85 of the El Paso City Code.	1 Rpld	12.44.180 B.3.
			Rpld	12.44.180 B.15.—17.
			Rpld	12.44.180 B.19., 20.
			Rpld	12.44.180 B.23.
			Rpld	12.44.180 B.25.—27.
			Rpld	12.44.180 B.29., 30.
			2	12.44.180 B.22.
			3	12.44.180 B.28.c.iii.
17735	3- 6-2012	An Ordinance granting Special Permit No. PZST11-00014, to allow for a planned residential development with reduced setbacks and to repeal Special Permit Ordinance 016326 approved by the City Council on April 11, 2006, On The property described as Lots 1-14, Block 423, Aspen Estates, City Of El Paso, El Paso County, Texas, pursuant to Section 20.04.320 of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: north of Pellicano Drive and west of Gene Torres Drive. Property Owner: Cisco Homes, LLC. PZST11-00014		Omitted
17736	3- 6-2012	An Ordinance amending the 2025 Proposed Thoroughfare System as detailed in the Map Atlas of The Plan for El Paso and its related documents as originally approved by El Paso City Council in 1999, and as subsequently amended, to delete a portion of Independence Drive from Delfina Drive to Elvin Way.		Omitted
17737	3- 6-2012	An Ordinance vacating a utility easement described as a portion of Lots 16 & 17, Block 1, Shadow Mountain Heights "Replat A", City of El Paso, El Paso County, Texas. Applicant: Stuart P. Shiloff and Nancy Shiloff. SUET12-00001		Omitted
17738	3- 6-2012	An Ordinance amending Title 19 (Subdivisions), Chapter 19.10 (Dedication, Construction Requirements and City Participation), and Chapter 19.15 (Roadways) of the El Paso City Code to remove references to the Development Coordinating Committee. The penalty is as provided in Chapter 19.42 of the City of El Paso City Code.	1	19.10.020 A.3.
			2	19.15.040 E.1.
17739	3- 6-2012	An Ordinance amending Title 19 (Subdivisions), Chapter 19.18 (Traffic Impact Analysis), of the El Paso City Code to amend the Traffic Impact Analysis standards and requirements. The penalty is as provided in Chapter 19.42 of the City of El Paso City Code.	1	19.18.010—19.18.040
17740	3- 6-2012	An Ordinance amending Title 9 (Health and Safety), Chapter 9.11 (Tree Care), Section 9.11.010 (General Provisions) of the El Paso City Code to amend the definition of Arboricultural Specifications Manual. The penalty being as provided in Chapter 1.08, General Penalty, of the El Paso City Code.	1	9.11.010 D.1.
17741	3- 6-2012	An Ordinance amending Title 13 (Streets, Sidewalks and Public Places), Chapter 13.04 (Street and Sidewalk Construction and Maintenance), Section 13.04.045 (Sidewalks in New Development) of the El Paso City Code to remove reference to the Development Coordinating Committee. The penalty being as provided in Chapter 1.08, General Penalty, of the El Paso City Code.	1	13.04.045 B.2.c.

Ordinance Number	Approval Date	Description	Section	Section this Code
17742	3- 6-2012	An Ordinance amending Title 15 (Public Services), Chapter 15.08 (Street Rentals) Section 15.08.120 (Special Privilege Licenses and Permits) of the El Paso City Code to amend the staff designated to accept, review, process and approve applications. The penalty being as provided in Chapter 1.08, General Penalty, of the El Paso City Code.	1	15.08.120
17743	3- 6-2012	An Ordinance amending Title 15 (Public Services), Chapter 15.20 (Stormwater Management), Section 15.20.110 (Stormwater Discharge from Construction Activities) of the El Paso City Code to provide for appeals to be sent to the Construction Board of Appeals. The penalty being as provided in Section 15.20.150 of the El Paso City Code.	1	15.20.110 A.3.
17744	3- 6-2012	An Ordinance amending Title 2 (Administration and Personnel), Chapter 2.102 (Neighborhood Association Recognition) of the El Paso City Code in its entirety. To provide a standardized recognition policy; to define terms; to provide criteria for recognition and registration of a neighborhood association or civic association as a recognized neighborhood association; to establish the responsibilities of a recognized neighborhood association; to clarify the process for suspension or revocation of recognition status; to clarify the services available to recognized neighborhood associations.	2	2.102.010—2.102.100
17745	3- 6-2012	An Ordinance terminating the special privilege license granted by Ordinance No. 017322 to Kelbor Enterprises, Inc. doing business as Coconuts, permitting the encroachment of an outdoor patio café onto a portion of City right-of-way located at 816 Piedras Street and allowing the sale and service of alcoholic beverages as a permissible activity within the outdoor patio café area (SPL09-00035)		Omitted
17746	3- 6-2012	An Ordinance amending Title 7 (Animals), by amending Chapter 7.28 (Animal Shelter Advisory Committee) in its entirety; to combine the Animal Shelter Advisory Committee with the Animal Welfare Advisory Committee and to establish term limits; and to delete Chapter 7.30 of the City Code.	2	7.28.010
			3	7.28.020
			4	7.28.030
			5	7.28.040
			6	7.28.050
			7	7.28.060
			9 Rpld	7.30.010—7.30.060
17747	3- 6-2012	An Ordinance amending Ordinance 8065 (Civil Service Rules), to amend the entirety of or various sections of Rules Nos. 1, 2, 5, 6, 11, 13, 14, 15, 19, 20, 23, 24 and 29; to delete rules Nos. 3, 4, 7, 8, 9, 10, 12, 18, 21, 22, 25, 26, 27, 28 and 30; and to renumber all remaining and revised Rules consecutively, including those Rules not otherwise amended (Rules 16 and 17).		Omitted
17748	3- 6-2012	An Ordinance amending Ordinance 8064 (Classification and Compensation Plan), to amend the Ordinance in its entirety.		Omitted
17749	3- 6-2012	An Ordinance amending Title 18 (Building and Construction), Chapter 18.02 (Building and Construction Administrative Code) of the El Paso City Code, by repealing Chapter 18.02 in its entirety and adopting a new Chapter 18.02 in its place, the penalty being as provided in Section 18.02.111 (Violations and Penalties) of the El Paso City Code.	A Rpld	18.02.101—18.02.110
			Added	18.02.101—18.02.111

Ordinance Number	Approval Date	Description	Section	Section this Code
17750	3- 6-2012	An Ordinance authorizing the City Manager to sign a Contract of Sale and any other necessary documents between the City of El Paso and La Frontera Conservation Fund which will allow the City to convey Lots 1 through 10, both inclusive, Block 1, Satterthwaite Addition, City of El Paso, El Paso county, Texas; also known and numbered as 601 N. Oregon, El Paso, Texas.		Omitted
17751	3- 6-2012	An Ordinance amending the City of El Paso's Comprehensive Plan, "The Plan for El Paso," and the Year 2025 General Land Use Map.		Omitted
17752	3-20-2012	An Ordinance amending Title 2 (Administration and Personnel), Chapter 2.92 (Ethics); of the City Code by amending Section 2.92.070 A (Reporting Requirements) to revise the requirements for filing financial disclosure forms by City Board and Commission members; the penalty is as provided in Section 2.92.150 of the El Paso City Code.	1	2.92.070 A.
17753	3-20-2012	An Ordinance amending Title 19 (Subdivisions), Chapter 19.20 (Parks and Open Space), Section 19.20.060 (Exclusions from Dedication Requirement), of the El Paso City Code to add an exclusion for properties covered under an Adaptive Reuse Overlay. The penalty is as provided in Chapter 19.42 of the City of El Paso City Code.	1 Added	19.20.060 I.
17754	3-20-2012	An Ordinance amending Title 20 (Zoning), Chapter 20.02 (General Provisions and Definitions) and Chapter 20.10 (Supplemental Use Regulations) of the El Paso City Code, to add a definition for adaptive reuse and to establish standards for an Adaptive Reuse Overlay. The penalty is as provided for in Chapter 20.24 of the City of El Paso City Code.	1	20.02.033
			2 Added	20.10.055
17755	3-20-2012	An Ordinance amending Title 20 (Zoning), Chapter 20.04 (Administrative Provisions), Article III (Detailed Site Development Plan Approval Process), Section 20.04.150 (Procedure) of the El Paso City Code to amend the administrative approval process for detailed site development plans. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.	1	20.04.150 C.
17756	3-20-2012	An Ordinance amending Title 20 (Zoning), Appendix B (Table of Density and Dimensional Standards), Subpart C (Building Setbacks) in the A (Apartment) and C (Commercial) Zoning Districts, to amend the setback requirements. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.	1(Exh. A)	Tit. 20, App. B
17757	3-20-2012	An Ordinance amending Title 20 (Zoning), Chapter 20.10 (Supplemental Use Regulations), Section 20.10.680 (Temporary Uses), of the El Paso City Code in its entirety to amend the application process and standards for temporary uses. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.	1	201.0.680
17758	3-20-2012	An Ordinance changing the zoning of a portion of Lots 3 through 15, Block 6, Stiles Garden, City of El Paso, El Paso County, Texas from A-2 (Apartment) to C-2 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 7204½—7228 North Loop Drive. Property Owner: MAR FAM Enterprises, LLC. PZRZ11-00057		Omitted
17759	3-20-2012	An Ordinance vacating a portion of Wheeling Street between Blocks 12 and 13, Manhattan Heights Addition, City of El Paso, El Paso County Texas. SUB10-00030		Omitted
17760	3-20-2012	An Ordinance authorizing the City Manager to sign a lease with El Paso Independent School District for 85,400 square feet of property at Memorial Park (including a portion of a vacated street) for a 99 year term. Consideration will be a 99 year lease of District property in northeast El Paso for city's use as a public park.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17761	3-20-2012	An Ordinance authorizing the City Manager to sign a Contract of Sale with El Paso Motorsports, Inc., (d/b/a Sun City Built) for the sale of the property at 10969 Duke Snider Circle, El Paso, Texas in the amount of $48,711.56.		Omitted
17762	4- 3-2012	An Ordinance granting Special Permit No. PZST11-00016, to allow for a 100% parking reduction on the property described as all of Lot 16, and the East ½ of Lot 15, Block 107, East El Paso Addition, City of El Paso, El Paso County, Texas pursuant to Section 20.04.320 of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 3329 Montana Avenue. Property Owner: Dr. Rafael Armendariz. PZST11-00016		Omitted
17763	4- 3-2012	An Ordinance changing the zoning of Tracts 7K, 7K1, 7L1, 7L1A, and 7L1B, Block 35, Ysleta Grant, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) to PR-I (Planned Residential I) and approving a Detailed Site Development Plan to allow the development of a Senior Housing Living Community. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: Independence Drive and Elvin Way. Property Owner: City of El Paso. PZRZ12-00002		Omitted
17764	4- 3-2012	An Ordinance amending Ordinance No. 017524 which amended Ordinance No. 017109 which vacated a portion of Boston Avenue, to allow another one year extension to complete improvements on the pedestrian walkway and to revise the Quitclaim Deed to reflect the extended time for completion.		Omitted
17765	4- 3-2012	An Ordinance amending Title 19 (Subdivisions), Chapter 19.10 (Dedication, Construction Requirements and City Participation), Section 19.10.050 (Roadway Participation Policies-Improvement of Adjacent Perimeter Roads and Utilities) and Chapter 19.15 (Roadways), Section 19.15.050 (General Requirements) of the El Paso City Code to allow for the waiver of the dedication or improvements of adjacent substandard roads when specific criteria are met. The penalty is as provided in Chapter 19.42 of the City of El Paso City Code.	1	19.10.030 A.
			2	19.15.050 D.
17766	4-10-2012	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.85 (Parking Violations Bureau), of the El Paso City Code by adding Section 12.85.065 (Final Judgments); and amending Section 12.85.070 (Enforcement), to clarify the procedure for enforcement; the penalty is as provided in Section 12.84.010 of the El Paso City Code.	1 Added	12.85.065
			2	12.85.070
17767	4-17-2012	An Ordinance amending Title 20 (Zoning), Chapter 20.18 (Sign Regulations) Section 20.18.410 (R-F, R-1, R-2, R-2A, R-3, R-3A, R-4, R-5, RMH, PR-II and PMD Districts) of the El Paso City Code to add school and church monument signs and requirements. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.	1	20.18.410
17768	4-17-2012	An Ordinance changing the zoning of a portion of Tract 3, Block 10, Boothville Subdivision, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) to C-2 (Commercial) and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 8623 North Loop Drive. Applicant: Aseo, Inc. PZRZ11-00059		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17769	4-17-2012	An Ordinance granting Special Permit No. PZST11-00017, to allow a ballroom on the property described as a portion of Tract 3, Block 10, Boothville Subdivision, City of El Paso, El Paso County, Texas pursuant to Section 20.04.320 of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 8623 North Loop Drive. Property Owner: Aseo, Inc. PZST11-00017		Omitted
17770	4-17-2012	An Ordinance amending Title 2 (Administration and Personnel) Chapter 2.22 (Open Space Advisory Board), of the El Paso City Code, to clarify the role of the Open Space Advisory Board in the development review process and to amend staff support for the Board.	1	2.22.040
			2	2.22.050
17771	4-17-2012	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.180 (No Stopping or Standing - Tow Away Zone), of the El Paso City Code, to amend Paragraph 106 to allow for parking on a portion of Pendale Road between Castner Drive and Kastrin Street, the penalty being as provided in Section 12.84.010 of the El Paso City Code.	1	12.88.180 A.106.
17772	4-17-2012	An Ordinance amending Title 13 (Streets, Sidewalks and Public Places), Chapter 13.08 (Excavations). Section 13.08.040 (Fees, Bonds and Insurance), of the El Paso City Code, to lower the bond amount required for a permit to cut or excavate any street, alley, sidewalk, parkway or driveway within the City Right of Way from $50,000 to $10,000, the penalty being as provided in Section 13.08.140 (Violation-Penalties) of the El Paso City Code.	1	13.08.040 B.
17773	4-17-2012	An Ordinance amending Title 2 (Administration and Personnel), of the El Paso City Code, by amending Chapter 2.38 (Building and Standards Commission) in its entirety regarding the creation and authority of the Building and Standards Commission; and establishing the process for the conduct of administrative hearings and appeals of vacant building registration denials or revocations by the Commission; the penalty is as provided in Section 2.38.080 of the El Paso City Code.	1	2.38.010—2.38.110
17774	4-17-2012	An Ordinance amending Title 18 (Building and Construction), of the El Paso City Code, by creating Chapter 18.42 (Dangerous structures), to establish emergency authority for the securing of a dangerous structure before a hearing; and to provide for the recovery of and filing of a lien for the costs and expenses incurred by the City.	1—3 Added	18.42.010, 18.42.020
17775	4-17-2012	An Ordinance authorizing the City Manager to sign a Contract of Sale and any other necessary documents between the City of El Paso and Paisano Housing Redevelopment Corporation which will allow the City to convey Tracts 7-K, 7-K-1, 7-L-1-A, and 7-L-1-B, Block 35, Ysleta Grant, in the City of El Paso, El Paso County, Texas (located near the intersection of Elvin Way and Independence Drive), to Paisano Housing Redevelopment Corporation.		Omitted
17776	5- 1-2012	An Ordinance amending Title 20 (Zoning), Chapter 20.10 (Supplemental Use Regulations) of the El Paso City Code, to add a section establishing standards for an environmental and wildlife research conservancy overlay. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.	1	20.02.805
			2 Added	20.10.405

Ordinance Number	Approval Date	Description	Section	Section this Code
17777	5- 1-2012	An Ordinance amending Title 20 (Zoning), Chapter 20.22 (Nonconforming Situations), Section 20.22.030 (Nonconforming Uses), Section 20.22.040 (Nonconforming Structures), and Section 20.22.070 (Registration and Certificate of Occupancy Required) of the El Paso City Code, to revise the registration procedures for a non-conforming building or use. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.	1	20.22.030 A.
			2	20.22.040 A.
			3	20.22.070 A.
17778	5- 1-2012	An Ordinance granting special permit No. PZST12-00001, to allow for a planned residential development overlay with reduced cumulative setbacks on Lots 4 through 24, Block 36, Sandstone Ranch #8, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.270 (Zoning) of the El Paso City Code. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Property Owner: Northtowne Village Joint Venture. Subject Property: North of Marcus Uribe Drive and West of Sean Haggerty Drive. PZST12-00001		Omitted
17779	5- 1-2012	An Ordinance amending Title 5 (Business License and Permit Regulations), Chapter 5.13 (Security Alarm Systems), Sections 5.13.040 (Permit Term) and 5.13.050 (Permit Renewal) of the El Paso City Code to provide an option for a one year permit in certain cases, the penalty being as provided in Chapter 1.08 of the El Paso City Code.	1	5.13.040
				5.13.050
17780	5- 1-2012	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.010 (Schedule I - One-Way Streets) of the El Paso City Code, to delete San Antonio Avenue from El Paso Street to Florence Street, the penalty being as provided in Section 12.84.010 and Chapter 12.85 of the El Paso City Code.	1 Rpld	12.88.010 22.
17781	5- 1-2012	An Ordinance granting a franchise to Life Ambulance Service Inc. to operate a non-emergency ambulance transfer service.		Omitted
17782	5- 1-2012	An Ordinance granting a franchise to Elite Medical Transport to operate a non-emergency ambulance transfer service.		Omitted
17783	5- 1-2012	An Ordinance granting a franchise to Dominion Ambulance, LLC to operate a non-emergency ambulance transfer service.		Omitted
17784	5-15-2012	An Ordinance changing the zoning of the following real property known as: Parcel 1: Block 34 excluding Lot 1 and Lot 31, all of Block 35 and Block 36 excluding Lot 1 and Lot 20, City of El Paso, El Paso County, Texas, from R-5/SC (Residential/Special Contract) to RMU (Residential Mixed Use); and, Parcel 2: Lot 1, Block 36, Montwood Heights Unit 8, City of El Paso, El Paso County, Texas, from C-3/SC (Commercial/Special Contract) to RMU (Residential Mixed Use). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: north of Zaragoza Road and east of Joe Battle Boulevard. Property Owner: The Housing Authority of the City of El Paso. PZRZ12-00005		Omitted
17785	5-15-2012	An Ordinance releasing all conditions placed on property by Special Contract No. 56-005 of the following parcels: Parcel 1: a portion of Tract 1 and Tract 2, Bassett Center Subdivision, City of El Paso, El Paso County, Texas, and Parcel 2: a portion of Tract 1 and Tract 2, Bassett Center Subdivision, City of El Paso, El Paso County, Texas, and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: north of I-10 and east of Magruder Street. Property Owner: Bassett Place Real Estate Company, LLC. PZCR12-00001		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17786	5-15-2012	An Ordinance changing the zoning for the following parcels of land: Parcel 1. a portion of Tract 1, all of Tracts 3 and 3A, John Barker Survey No. 10 and Tract 4F2B, A.F. Miller Survey No. 215 and Tracts 6 and 7, I.F. Harrison Survey No. 54 and Montecillo Unit Three Amending Plat save and except Lot 2, Block 2, thereof as recorded in clerk's file No. 20090065237 and save and except 4.6007 acres being Lots 3 and 4, Block 9, Montecillo Unit Three Replat A, recorded in clerk's file No. 20110085971, Real property records City of El Paso, El Paso County, Texas, from C-1, C-2, C-3/C, GMU/C, A-2, R-3, R-3A, R-5, and M-1 to SCZ (SmartCode Zone), and Parcel 2. Tract 4, John Barker Survey No. 10, City of El Paso, El Paso County, Texas from M-3 to SCZ (SmartCode Zone); and Parcel 3. Lot 1, Block 3, Kings Hill Replat and Tract 4A, 6G and a portion of Tract 6A, A.F. Miller Survey No. 216 and Tract 21, John Barker Survey No. 10, City of El Paso, El Paso County, Texas, from C-1, C-1/SC, A-O/SC, A-O/C/SC, PR-1/SC and R-3 to SCZ (SmartCode Zone). The penalty is as provided for in Chapter 21.60 of the El Paso City Code. Property Owner: EPT Mesa Development, LP. PZRZ11-00058.		Omitted
17787	5-15-2012	An Ordinance amending Title 21 (SmartCode), Chapter 21.30 New Community Plans), Chapter 21.40 (Infill Community Plans), Chapter 21.50 (Building Scale Plans), Chapter 21.70 (Definitions of Terms), and Chapter 21.80 (Tables) of the El Paso City Code to clarify the SmartCode provisions, to calibrate the SmartCode to the local character of the place and local conditions, and to add standards for a new transect zone; the penalty is as provided for in Chapter 21.60 of the El Paso City Code.	1	21.30.030
			2	21.30.050
			3	21.30.070
			4	21.30.100
			5	21.40.020
			6	21.40.060
			7	21.50.060
			8	21.50.070
			9	21.50.080
			10	21.50.090
			11	21.50.100
			12	21.50.110
			13	21.50.120
			14	21.50.130
			15	21.50.140
			16	21.70.010
			17	21.80.010
				21.80.030—21.80.130
				21.80.150
				21.80.160
			Added	21.80.165
				21.80.170
			Added	21.80.215
				21.80.220
17788	5-15-2012	An Ordinance amending the Final Project Plan and Final Reinvestment Zone Financing Plan for Tax Increment Reinvestment Zone Number Five, City of El Paso, Texas; adopting said amendments as required by Section 311.011(E) Texas Tax Code.		Omitted
17789	5-15-2012	An Ordinance vacating a portion of Kathy Drive right of way out of Richard Lee Subdivision, City of El Paso, El Paso County, Texas. SURW11-00006		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17790	5-15-2012	An Ordinance vacating a portion of Farrell Drive right of way out of Richard Lee Subdivision, City of El Paso, El Paso County, Texas. SURW11-00007		Omitted
17791	5-29-2012	An Ordinance authorizing the issuance of "City of El Paso, Texas, Municipal Drainage Utility System Revenue Bonds Series 2012" and resolving matters which are necessary to effectuate said issuance, including the delegation of matters relating to the sale and issuance of the Bonds to an authorized City officer or employee within certain specified parameters.		Omitted
17792	5-29-2012	An Ordinance amending Title 20 (Zoning), Chapter 20.10 (Supplemental Use Regulations), Section 20.10.080 (Animal facilities, animal kennel, animal training facility, veterinary treatment center, clinic or hospital), Appendix A (Table of Permissible Uses) of the El Paso City Code to allow Animal facilities, animal kennel, animal training facility, veterinary treatment center, clinic or hospital in M-1 (Light Manufacturing Zone District). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.	1	20.10.080 A.2.
				20.10.080 B.2.
				20.10.080 C.
17793	5-29-2012	An Ordinance designating a certain noncontiguous geographic area in the City of El Paso as a Tax Increment Reinvestment Zone; describing the boundaries of the zone; providing for an effective date and a termination date for the zone; naming the zone "Reinvestment Zone Number Six, City of El Paso, Texas"; creating a tax increment reinvestment Board of Directors; establishing a tax increment fund; and containing other provisions related thereto.		Omitted
17794	5-29-2012	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.200 (Schedule XVII - Restrictions on Parking in Residential Districts), of the El Paso City Code, to add Prince Edward Avenue, Rushing Road, Donald Drive and McCombs Street, the penalty being as provided in Section 12.84.010 and Chapter 12.85 of the El Paso City Code.	1	12.88.200
17795	6- 5-2012	An Ordinance changing the zoning of the following real property known as: Parcel 2: all of Tract 1-C-14-A, Block 5, Ascarate Grant, City of El Paso, El Paso County, Texas, from C-1 (Commercial) to C-3 (Commercial), The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
17796	6- 5-2012	An Ordinance changing the zoning of a portion of Lot 2, Block 2, Butterfield Trail Aviation Park Unit Two, City of El Paso, El Paso County, Texas from C-4 (Commercial) to M-1 (Light Manufacturing). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 10151 Montana Avenue. Property Owner: City of El Paso. PZRZ12-00006		Omitted
17797	6- 5-2012	An Ordinance vacating a 0.068 acre parcel (2,987 sq. ft.) within 70' wide Right-Of-Way of San Antonio Street, Campbell's Addition, City of El Paso, El Paso County, Texas. SUB10-00164		Omitted
17798	6- 5-2012	An Ordinance vacating a 0.166 acre parcel (7,233 sq. ft.) within 70' wide Right-Of-Way of Magoffin Avenue, Campbell's Addition, City of El Paso, El Paso County, Texas. SUB10-00165		Omitted
17799	6- 5-2012	An Ordinance vacating a 0.217 acre parcel (9,439 sq. ft.) within 70' wide Right-Of-Way of Myrtle Avenue, Campbell's Addition, City of El Paso, El Paso County, Texas. SUB09-00166		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17800	6- 5-2012	An Ordinance amending Title 18 (Building and Construction), Chapter 18.08 (Building Code), Section 18.08.070 (Fences), of the El Paso City Code, to amend the requirements and standards for electrified fences, the penalty being as provided in section 18.02.107 (Violations and Penalties) of the El Paso City Code.	1	18.08.070
17801	6- 5-2012	An Ordinance to amend the El Paso City Code to reflect departmental reorganization by amending Title 20 (Zoning) to amend various sections thereunder pertaining to the duties that had been assigned to the Planning and Economic Development Department, to correctly identify the new department name; and regarding the duties of the City Engineer; the penalty being as provided in section 20.24.020 of the El Paso City Code.	1	20.04.010
			2	20.04.560
			3	20.04.900
			4	20.10.360
			5	20.10.400 D.—F.
			6	20.10.700
			7	20.14.040 D., E.
				20.14.040 G.
			8	20.14.080
			9	20.14.180
			10	20.14.210 D.
			11	20.16.020 C.
			12	20.18.050
17802	6- 5-2012	An Ordinance to amend the El Paso City Code to reflect departmental reorganization by amending Title 21 (Smart Code), to amend section 21.70.010 to revise the definition of Planning Division to reflect the change of departmental name to the City Development Department; the penalty being as provided in sections 21.60.010-21.60.030 of the El Paso City Code.	1	21.70.010
17803	6- 5-2012	An Ordinance to amend the El Paso City Code to reflect departmental reorganization by amending Title 13 (Streets, Sidewalks and Public Places) to amend various sections thereunder pertaining to the duties which had been assigned to the Engineering and Construction Management Department and the Planning and Economic Development Department, and the staff; the penalty being as provided in sections 1.08.10-1.08.030 of the El Paso City Code.	1	13.04.010 C.
			2	13.04.045
			3	13.04.070
			4	13.30.040
17804	6- 5-2012	An Ordinance to amend the El Paso City Code to reflect departmental reorganization by amending Title 9 (Health and Safety) to amend various sections to eliminate duties which had been assigned to the Engineering and Construction Management Department; the penalty as being provided in sections 1.08.010-1.08.030 of the El Paso City Code.	1	9.11.010
			2	9.50.110
17805	6- 5-2012	An Ordinance amending Title 2 (Administration and Personnel), Chapter 2.10 (City Development Department) of the El Paso City Code, to change the department name and revise the functions of the department to be known as the City Development Department.	1	Ch. 2.10(tit.)
			2, 3	2.10.010, 2.10.020

Ordinance Number	Approval Date	Description	Section	Section this Code
17806	6- 5-2012	An Ordinance to amend the El Paso City Code to reflect departmental reorganization pertaining to the duties assigned to the Planning and Economic Development Department and staff by amending Titles 2 (Administration and Personnel) and 3 (Revenue and Finance) to amend various sections to reflect the name change for this department to City Development Department; the penalty being as provided in sections 1.08.010—1.08.030 of the El Paso City Code.	1	2.20.050 A.
			2	3.04.035
			3	3.16.130
17807	6- 5-2012	An Ordinance amending Title 13 (Streets, Sidewalks and Public Places), Chapter 13.06 (Engineering and Construction Management Department), of the El Paso City Code, to amend the functions of the department known as the Engineering and Construction Management Department.	1	13.06.010
			2	13.06.020
17808	6- 5-2012	An Ordinance to amend the El Paso City Code to reflect departmental reorganization by amending Title 15 (Public Services) to amend various sections thereunder relating to duties which had been assigned to the Engineering and Construction Management Department and the Department of Transportation, and the staff; the penalty being as provided in sections 15.08.125 and 1.08.010-1.08.030 of the El Paso City Code.	1	15.08.120 B.8.
			2	15.08.120 G.10.
			3	15.08.120 I.2.g.
			4	15.08.120 K.1.a.(1)
			5	15.08.120 K.1.a.(3)(d)
				15.08.120 K.1.a.(3)(g)
			6	15.08.120 K.1.b.(5)
				15.08.120 K.1.b.(22)
			7	15.08.120 J.2.g.
			8	15.12.030—15.12.050
			9	15.12.055
			10	15.20.100
			11	15.20.110 C.2.f.
17809	6- 5-2012	An Ordinance to amend the El Paso City Code to reflect departmental reorganization by amending Title 18 (Building and Construction), Chapter 18.44 (Grading), of the El Paso City Code; to amend sections thereunder to allow for the reassignment of duties assigned to the Engineering and Construction Management Department; the penalty being as provided in sections 18.44.210 of the El Paso City Code.	1	18.44.060
			2	18.44.080 B.
17810	6- 5-2012	An Ordinance to amend the El Paso City Code to reflect departmental reorganization by amending Title 18 (Building and Construction), Chapter 18.46 (Landscape), of the El Paso City Code; to amend sections thereunder to reassign duties that had been assigned to the Engineering and Construction Management Department; and provide for enforcement and the penalty; the penalty is as provided in section 18.46.320 of the El Paso City Code.	1	18.46.100 C.
			2	18.46.140 D.
			3	18.42.210
			4	18.46.300
			5	18.46.310
			6	18.46.320 A.
			7	18.46.340

Ordinance Number	Approval Date	Description	Section	Section this Code
17811	6- 5-2012	An Ordinance to amend the El Paso City Code to reflect departmental reorganization by amending Title 19 (Subdivisions), to amend various sections thereunder pertaining to the duties that had been assigned to the City Engineer, and the Planning and Economic Development Department, and staff; the penalty being as provided in section 19.42.070 of the El Paso City Code.	1	19.08.010
			2	19.10.020
			3	19.15.060
			4	19.16.020
			5	19.16.030
			6	19.20.030 B.
			7	19.26.040 B
			8	19.31.030
			9	19.42.010
			10	19.42.040
			11	19.46.040
17812	6- 5-2012	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.44 (Stopping, Standing and Parking Generally), of the El Paso City Code, to add Section 12.44.070 (Back-In Angled Parking Only Zone) to clarify the proper way to park in back-in angled parking spaces, the penalty being as provided in Section 12.84.010 and Chapter 12.85 of the El Paso City Code.	1 Added	12.44.070
17813	6- 5-2012	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.44 (Stopping, Standing and Parking Generally), Section 12.44.010 (Where Signs Required) and 12.44.020 (Where No Signs Required), of the El Paso City Code, to clarify where signs are required, the penalty being as provided in section 12.84.010 and Chapter 12.85 of the El Paso City Code.	1	12.44.010 A.
			2	12.44.020 O.
17814	6- 5-2012	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.44 (Stopping, Standing and Parking Generally), Section 12.44.180 (Regulations Pertaining to Certain Special Situations), Paragraph B (The Regulations Applicable to Each Such Zone), of the El Paso City Code, to provide for reserved parking spaces for certain Federal GSA employees during such times as signs are posted by the City of El Paso Department of Transportation, the penalty being as provided in Section 12.84.010 of the El Paso City Code.	1	12.44.180 B.14.
				12.44.180 B.24.
			2 Added	12.44.180 B.32.
			3	12.44.180 B.12.
17815	6-19-2012	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.20 (Traffic-Control Devices), Section 12.20.190 (School Flasher Signal Installations), of the El Paso City Code, to amend the financial responsibility for the design and installation of a school flasher signal, the penalty being as provided in Section 12.84.010 of the El Paso City Code.	1	12.20.180 B.
			2	12.20.190 D.

Ordinance Number	Approval Date	Description	Section	Section this Code
17816	6-19-2012	An Ordinance authorizing the City Manager to sign a Special Warranty Deed to convey 0.971 acres of city land, an El Paso Water Utilities Public Service Board Water Well Site Number 25, and a Drainage Easement for highway purposes of 0.032 acres (1,394 square feet) on adjacent Parcel 49E, both under the jurisdiction of the El Paso Water Utilities Public Service Board, to the State of Texas, acting by and through its Texas Department of Transportation for the Loop 375 Transmountain Road Project, from U.S. 54 (Patriot Freeway) to BU 54 (Dyer Street), just east of Rushing Road, El Paso, El Paso County, Texas and authorizing the City Manager to sign any and all necessary documentation to complete the conveyance and providing an effective date.		Omitted
17817	7- 3-2012	An Ordinance repealing Ordinance No. 017708 dated January 17, 2012 which granted a special privilege license to Mary Stillinger and Enriqueta Godinez, permitting the maintenance and repair of a 2,199 square foot portion of an existing masonry wall with wrought iron fencing within portions of City right-of-way on Farrell Drive between Cindy Drive and Kathy Drive and Kathy Drive between Stevens Road and Farrell Drive adjacent to the property legally described as Lots 15 and 16, Richard Lee Subdivision, City of El Paso, El Paso County, Texas, thereby terminating the special privilege license (SPL11-00040).		Omitted
17818	7- 3-2012	An Ordinance vacating a portion of an 18' alley out of Block 47, Bassett Addition, City of El Paso, El Paso County, Texas. Applicant: El Paso Water Utilities. SUB10-00307		Omitted
17819	7-17-2012	An Ordinance changing the zoning of the following real property known as: Parcel 1: Portion of Section 27, Block 79, Township 2, Texas and Pacific Railroad Company Surveys, City of El Paso, El Paso County, Texas, from C-2/c (Commercial/condition) to A-O/c (Apartment-Office/condition); and Parcel 2: Portion of Section 27, Block 79, Township 2, Texas and Pacific Railroad Company Surveys, City of El Paso, El Paso County, Texas, from PR-I (Planned Residential I) to A-O (Apartment-Office), the penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: Rich Beem Boulevard at Eastbrook Drive. Property Owner: Tropicana Development, Inc. PZRZ12-00007		Omitted
17820	7-17-2012	An Ordinance releasing all conditions placed on property by Ordinance No. 016385 which changed the zoning of a portion of Section 27, Block 79, Township 2, Texas and Pacific Railroad Company Surveys, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: Rich Beem Boulevard at Eastbrook Drive. Property Owner: Tropicana Development, Inc. PZCR12-00004		Omitted
17821	7-17-2012	An Ordinance amending Ordinance No. 016528 to modify the boundaries of the Tax Increment Reinvestment Zone Number Five, City of El Paso, Texas to enlarge the boundaries of the existing zone to include an additional area in Downtown El Paso: Addition B Area - Union Plaza, as more fully described herein; adopting an amendment to the Final Project and Final Reinvestment Zone Financing Plans; and to amend other provisions of Ordinance No. 016528 related thereto.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17822	7-17-2012	An Ordinance authorizing the City Manager to sign a Contract of Sale and any other necessary documents between the City of El Paso and Roberto Sergio and Loruama Hernandez which will allow the City to convey Lot 19, less the northerly 4.36 feet thereof and less the southerly 0.77 feet thereof, Block 3, Hueco Mountain Village Replat A, an addition to the City of El Paso, El Paso County, Texas (3699 Prairie Rose Street, El Paso, Texas), to Roberto Sergio and Loruama Hernandez.		Omitted
17823	7-17-2012	An Ordinance amending Title 2 (Administration and Personnel), Chapter 2.94 (Regulation of Lobbying Activities), Section 2.94.090 (Restricted Activities) of the El Paso City Code to amend the type of solicitations in which persons are restricted from engaging in lobbying activities.	1	2.94.090 E.
17824	7-17-2012	An Ordinance repealing Ordinance No. 016911 dated June 10, 2008 adopting sustainable development design standards for City buildings, so that new standards may be adopted by resolution.		Omitted
17825	7-17-2012	An Ordinance amending the Master Zoning Plan approved on August 12, 2008, by Ordinance No. 016959 for the rezoning to GMU of Sections 9, 10, 15, 16, 17, and 18, Block 81, Township 1, Texas & Pacific Railway Company Surveys; and a portion of Sections 11, 14, and 19, Block 81, Township 1, Texas & Pacific Railway Company Surveys; and a portion of Sections 11, 12, 13, 14, 19, 20, and 21, Block 81, Township 1, Texas & Pacific Railway Company Surveys; and a portion of Sections 7, 17, 18, 19, 20, and 30, Block 80, Township 1, Texas & Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas, the penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject property: north of U.S. 54 and east of McCombs Street. Property owner: El Paso Water Utilities - Public Service Board and City of El Paso. PZRZ12-00008		Omitted
17826	7-31-2012	An Ordinance amending Title 18 (Building and Construction), Chapter 18.28 (Existing Building Code), of the El Paso City Code, to facilitate the reuse of existing buildings, the penalty being as provided in Section 18.02.107 (Violations and Penalties) of the El Paso City Code.	A Added	18.28.070—18.28.430
17827	7-31-2012	An Ordinance amending Title 15 (Public Services), Chapter 15.08, (Street Rentals), Section 15.08.120 (Special Privilege Licenses and Permits) of the El Paso City Code by repealing Section 15.08.120 (Special Privilege License and Permits) in its entirety and adopting a new Section 15.08.120 (Special Privilege Licenses and Permits) in its place. The penalty is as provided in Section 15.08.125 of the El Paso City Code.	1	15.08.120
17828	7-31-2012	An Ordinance providing for a one hundred percent reduction of certain development fees specified in Title 18, Title 19, and Title 20 of the El Paso City Code for a period of forty eight months for property development zoned Smart Code and designated as Transit Oriented Development and identified in the City's Sustainable City Centers Incentive Policy.		Omitted
17829	7-31-2012	An Ordinance vacating a portion of 9.5' alley adjacent to Lots 27 and 28, Block 1, Map of Orchard Addition, City of El Paso, El Paso County, SURW12-00010 Applicant Information: Aurora A. Rosales, 200 Hardesty, El Paso, TX 79905.		Omitted
17830	7-31-2012	An Ordinance vacating a portion of 9.5' alley adjacent to Lots 25 and 26, Block 1, Map of Orchard Addition, City of El Paso, El Paso County, SURW12-00009 Applicant Information: Maria Chaparro, 202 Hardesty, El Paso, TX 79905.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17831	7-31-2012	An Ordinance vacating a portion of 9.5' alley adjacent to Lots 16, 17 and 18, Block 1, Map of Orchard Addition, City of El Paso, El Paso County, SURW12-00007 Applicant Information: Raul Dozal, 212 Hardesty, El Paso, TX 79905.		Omitted
17832	7-31-2012	An Ordinance vacating a portion of 9.5' alley adjacent to Lot 15 and the north ½ of Lot 14, Block 1, Map of Orchard Addition, City of El Paso, El Paso County, SURW12-00003 Applicant Information: Maria Teresa Siegemund, 214 Hardesty, El Paso, TX 79905.		Omitted
17833	7-31-2012	An Ordinance vacating a portion of 9.5' alley adjacent to Lot 6 and 7, Block 1, Map of Orchard Addition, City of El Paso, El Paso County, SURW12-00008. Applicant Information: Celia Romero, 222 Hardesty, El Paso, TX 79905.		Omitted
17834	7-31-2012	An Ordinance vacating a portion of 9.5' alley adjacent to Lots 8 and 9, Block 1, Map of Orchard Addition, City of El Paso, El Paso County, SURW12-00004. Applicant Information: Noe Roberto Carreon, 220 Hardesty, El Paso, TX 79905.	Omitted	
17835	7-31-2012	An Ordinance granting Special Permit No. PZST12-00005, to allow infill development with reduced lot area, reduced setbacks and reduced lot width on the property described as South 115 feet of Tract 210, Sunrise Acres #2, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 7601 Mt. Latona Drive. Property Owner: Daniel Alderete. PZST12-00005.		Omitted
17836	7-31-2012	An Ordinance granting Special Permit No. PZST12-00004, to allow for infill development with reduced yard setbacks on the property described as Lots 1 through 4, Block 15, Sunset Heights Subdivision, an Addition to the City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Property Owner: Carlos Figueroa. Subject Property: 1207 Los Angeles Drive. PZST12-00004		Omitted
17837	7-31-2012	An Ordinance granting Special Permit No. PZST12-00003, to allow for infill development with reduced lot area, reduced lot width, and reduced side setbacks on the property described as Lot 24, Block 3 of Hughes Subdivision of Lots 8 through 15, Block 2, of the Alameda Acres Addition, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 5725 Kapilowitz Court. Property Owner: Olivia Galvez Beal. PZST12-00003		Omitted
17838	7-31-2012	An Ordinance vacating a portion of a 15 foot alley, Block 61, Supplemental Map No. 1 of East El Paso, City of El Paso, El Paso County, Texas. Applicant: Vasquez Realty Holdings, LLC., (SURW12-00001).		Omitted
17839	7-31-2012	An Ordinance granting a special privilege license to Marcus Courts Partners, LP, owner, Lowbrow Palace, LLC and Drag-IN, LLC dba The Palomino, Lessees, for the construction, installation, maintenance, use, and repair of two outdoor patio cafes within portions of City right-of-way along East Robinson Avenue adjacent to the property located at 2601 North Mesa Street, also known as 111 East Robinson Avenue, and allowing the sale and service of alcoholic beverages as a permissible activity within the outdoor patio cafe areas (NESV11-00032).		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17840	7-31-2012	An Ordinance adopting the 2012 Edition of the International Energy Conservation Code as an Alternative Energy Conservation Code for the City and amending Title 18 (Building and Construction) of the El Paso City Code, to add Chapter 18.80 (Alternative Energy Conservation Code) and providing incentives for use of the Alternative Energy Conservation Code, the penalty being as provided in Section 18.02.107 (Violations and Penalties) of the El Paso City Code.	B	18.80.010—18.80.030
17841	7-31-2012	An Ordinance amending Title 18 (Building & Construction), Chapter 18.02 (Building and Construction Administrative Code), Section 18.02.106 (Permit Fees) of the El Paso City Code, to clarify the criteria for valuation of New Residential and New Commercial permit fees, the penalty being as provided in Section 18.02.111 (Violations and Penalties) of the El Paso City Code.	1	18.02.106.6
			2	18.02.106.8
			3	18.02.106.9
17842	7-31-2012	An Ordinance deleting Chapter 9.32 (Tattooing and Body Piercing) of the El Paso City Code, as those requirements have been moved to Chapter 5.10 of the El Paso City Code and repealing Ordinances Nos. 015715 and 017392 which established and amended the Chapter.	1 Rpld	9.32.010—9.32.150
17843	7-31-2012	An Ordinance amending Title 5 (Business License and Permit Regulations), Chapter 5.10 (Tattooing and Body Piercing Licenses) of the El Paso City Code to rename the Chapter as Tattoo and Body Art Studio Registration and Artist License, and to amend the Chapter in its entirety; the penalty as provided in Section 5.10.180 of the El Paso City Code.	1	5.10.010—5.10.180
17844	7-31-2012	An Ordinance Amending Title 3 (Revenue and Finance), Chapter 3.04 (Property Taxes), Section 3.04.050 (Delinquent Taxes - Installment Payments) of The El Paso City Code to add Chief Financial Officer as an authorized signatory to installment payment agreements for delinquent property taxes.	1	3.04.050 E.
17845	7-31-2012	An Ordinance amending Title 13 (Streets, Sidewalks and Public places), Chapter 13.24 (City Parks and Recreation Areas), of the El Paso City Code in its entirety by repealing Chapter 13.24 in its entirety and adopting a new Chapter 13.24 (City Parks and Recreation Areas) in its place to clarify department policies; the penalty being as provided in Section 13.24.220 and Sections 1.08.010—1.08.030 of the El Paso City Code.	1 Rpld	13.24.010—13.24.210
			Added	13.24.010—13.24.220
17846	8- 7-2012	An Ordinance amending Title 3 (Revenue and Finance), Chapter 3.04 (Property Taxes), Section 3.04.035 (Exemption-Historically Significant Sites) of the El Paso City Code; to allow the tax exemption to remain with the property for the duration of the exemption regardless of ownership transfer and to lengthen the term of the tax exemption for contributing properties in the downtown historic district to fifteen years.	1	3.04.035
17847	8- 7-2012	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.56 (Parking Meters), Section 12.56.020.F (Installation) to remove the requirements for parking meter fees on Saturdays; and to allow for a debit or credit card processing fee in Section 12.56.090.C; the penalty as provided in Section 12.84.010 of the El Paso City Code.	1	12.56.020 F.
			2 Added	12.56.090 C.

Ordinance Number	Approval Date	Description	Section	Section this Code
17848	8- 7-2012	An Ordinance authorizing the City Manager to sign a Deed Without Warranty to convey 26.020 acres of city land under the jurisdiction of the El Paso Water Utilities Public Service Board, to the State of Texas, acting by and through its Texas Department of Transportation (TxDOT) for the Spur 276 Project, Loop 375 Expansion of Transmountain Road, located north of Borderland to Talbot at IH-10, authorizing the City Manager to sign any and all necessary documentation to complete the conveyance.		Omitted
17849	8-14-2012	An Ordinance ordering a Bond Election to be held in the City of El Paso, Texas, on November 6, 2012 making provisions for the conduct of the Election and resolving other matters incident and related to such election.		Omitted
17850	8-14-2012	An Ordinance ordering a special election to be held in the City of El Paso, Texas on November 6, 2012 for a venue project and imposing hotel occupancy tax, making provisions for the conduct of the election, and resolving other matters incident and related to such election.		Omitted
17851	8-21-2012	An Ordinance changing the zoning of Tract 8C, Boothville Subdivision, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) to C-1 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Property Owner: Investment Builders, Inc. Subject Property: 8628 North Loop Drive. PZRZ12-00011		Omitted
17852	8-21-2012	An Ordinance releasing all conditions placed on property by Ordinance No. 016861 which changed the zoning of Lot 1A, Block 1, Montecillo Unit 1 Replat A; and Lot 1, Block 2, Montecillo Unit Two, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: Mesa Street at Montecillo Boulevard. Property Owner: EPT Mesa Development, L.P. PZCR12-00003.		Omitted
17853	8-21-2012	An Ordinance amending conditions placed by Ordinance No. 06245 on Lots 11 and 12, Block 2, Sahara Subdivision, City of El Paso, El Paso County, Texas and amending conditions imposed by Ordinance No. 06245, adding one new condition and releasing conditions imposed by Ordinance No. 17313 on Lots 13 and 14, Block 2, Sahara Subdivision, City of El Paso, El Paso County, Texas. The Penalty is as provided for in Chapter 20.24 of the El Paso City Code. Property Owner; Juan Gandara and Laura Mendoza; Subject Property: 9950 Dyer Street. PZCR12-00002		Omitted
17854	8-21-2012	An Ordinance amending Title 20 (Zoning), Chapter 20.02 (General Provisions and Definitions) and Chapter 20.18 (Sign Regulations), Section 20.18.020 (Applicability) and Section 20.18.050 (Definitions) of the El Paso City Code, to add a definition for wayfinding sign and to exclude wayfinding signs from the provisions of Chapter 20.18. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.	1 Added	20.02.987
			2	20.18.020 C.
			3	20.18.050
17855	8-21-2012	An Ordinance amending Title 15 (Public Services), Chapter 15.08 (Street Rentals), of the El Paso City Code to add a City wayfinding program. The penalty is as provided in Section 15.08.125 of the El Paso City Code.	1 Added	15.08.140
17856	8-21-2012	An Ordinance changing the zoning of a portion of Lot 1, Block 23, Vista Granada Unit 3, City of El Paso, El Paso County, Texas from C-1 (Commercial) to C-3 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Property Owner: Textape, Inc. & George Gonzalez. Subject Property: 1380 George Dieter. PZRZ12-00012		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17857	8-21-2012	An Ordinance authorizing the City Manager to sign a Special Warranty Deed to convey a small tract of land consisting of 0.0482 acre of city land under the jurisdiction of the El Paso Water Utilities Public Service Board, to the adjacent homeowner, Ruben Luera, Jr., and spouse Matilde Luera, located adjacent to Marvin Drive and Buntline Road in Far Eastern El Paso County, Texas, authorizing the City Manager to sign any and all necessary documentation to complete the conveyance.		Omitted
17858	8-21-2012	An Ordinance authorizing the City Manager to sign a lease with the Transmountain Optimist Club for the lease of 4.69 acres of a portion of Blocks 78, 79, and 80 and the closed adjacent streets and alleys in Tobin Memorial Park, an addition to the City of El Paso, El Paso, Texas according to the map on file in Book 15, Page 17, Plat records of El Paso County, Texas and a portion of Tract 9B, Section 10, Block 81, Township 2, Texas & Pacific Railroad Company surveys municipally known as 8801 Railroad Drive, El Paso, Texas in the amount of $10.00 per annum.		Omitted
17859	8-21-2012	An Ordinance amending Title 9 (Health and Safety) Chapter 9.52 (Fire Prevention Code), Section 9.52.120 (Chapter 27, Hazardous Materials-General Provisions, Amended) to recover all labor charges necessary to mitigate HazMat Incidents. The penalty as provided in Section 9.52.030 of the El Paso City Code.	1	9.52.120.2
17860	8-21-2012	An Ordinance levying FY 2013 taxes		Omitted
17861	8-28-2012	An Ordinance amending the Final Project Plan and Final Reinvestment Zone Financing Plan for Tax Increment Reinvestment Zone Number Five, City of El Paso, Texas; adopting said amendments as required by section 311.011(E) Texas Tax Code; also providing a severability clause.		Omitted
17862	8-28-2012	An Ordinance amending Ordinance Numbers 010873, 012221, 012476, 012636, 014826, 015415, 015961, 016456, 017125, and 17435 which established operating procedures and set fees for Foreign-Trade Zone No. 68 and to allow the revisions to Zone Schedule No. 1, Rates, Rules, Charges and Regulations applying at Foreign Trade Zone No. 68, El Paso, Texas to amend the subzone fees and to revise the definitions of identified terms.		Omitted
17863	8-28-2012	An Ordinance amending Title 13 (Streets, Sidewalks and Public Places) Chapter 13.08 (Excavations), Section 13.08.090 (Specifications) of the El Paso City Code to amend the patching requirements for excavation across city right-of-way. The penalty being as provided in section 13.08.140 of the El Paso City Code.	1	13.08.090 B.
17864	9-11-2012	An Ordinance to correct an error in Ordinance No. 017768 which changed the zoning from R-F (Ranch and Farm) to C-2 (Commercial) and imposed a condition on a portion of Tract 3, Block 10, Boothville Subdivision, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 8623 North Loop Drive. Applicant: Aseo, Inc. PZRZ11-00059		Omitted
17865	9-11-2012	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.180 (No Stopping or Standing - Tow Away Zone), of the El Paso City Code, to delete Paragraph 112 thereby allowing parking on Father Rahm Avenue between El Paso Street and the first alley to the west of El Paso Street, south side only, the penalty being as provided in section 12.84.010 of the El Paso City Code.	1 Rpld	12.88.180 A.112.

Ordinance Number	Approval Date	Description	Section	Section this Code
17866	9-11-2012	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.030 (Schedule III - Parking Prohibited At All Times On Certain Streets) to add West Drive from a point 300 feet southwest of Garden Place to a point 70 feet northeast, both sides, the penalty being as provided in Section 12.84.010 and Chapter 12.85 of the El Paso City Code.	1 Added	12.88.030 376.
17867	9-18-2012	An Ordinance granting Special Permit No. PZST12-00006, to allow for infill development with reduced lot area, reduced lot width, cumulative setback, and a parking reduction on the property described as Lot 10, and the north half of Lot 9, Block 11, Mundy Heights Addition, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Property Owner: Maria L. Yee & Robert Concha. Subject Property: 1316 Missouri. PZST12-00006		Omitted
17868	9-18-2012	An Ordinance changing the zoning of Lot 10, and the north half of Lot 9, Block 11, Mundy Heights Addition, City of El Paso, El Paso County, Texas from C-2/H (Commercial/Historic) to R-4/H (Residential/Historic). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Property Owner: Maria L. Yee & Robert Concha. Subject Property: 1316 Missouri. PZRZ12-00015		Omitted
17869	9-18-2012	An Ordinance amending Title 20 (Zoning), Chapter 20.14 (Off-Street Parking, Loading, and Storage Standards), Section 20.14.020 (Scope), and Appendix C (Parking Regulations) of the El Paso City Code to amend the title of Appendix C, to amend the applicability provisions; to amend transitional housing parking requirements and amend single-family detached dwelling parking requirements. The penalty is as provided in Chapter 20.24 of the El Paso City Code.	1	20.14.020 A.2.
			2	Ch. 20, App. C(tit.)
			3, 4	Ch. 20, App. C
17870	9-18-2012	An Ordinance changing the zoning of a portion of Tract 39-A, O.A. Danielson Survey No 310, City of El Paso, El Paso County, Texas from A-O/sc (Apartments-Office/special contract) to C-1/sc (Commercial/special contract) and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Property Owner: Gabter, LP. Subject Property: East of George Dieter Drive and West of Zaragoza Road. PZRZ12-00017		Omitted
17871	9-19-2012	An Ordinance releasing all conditions placed on property by Ordinance No. 7871 and Ordinance No. 9264 which changed the zoning of a portion of Lot 1, Block 5, Mesa Hills Plaza, City of El Paso, El Paso County, Texas, and to impose an additional condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 5420 Hurd. Property Owner: Avico Family, L.P. PZCR12-00007		Omitted
17872	9-18-2012	An Ordinance to release Condition No. 1 in its entirety and to amend a current condition placed on property by Ordinance No. 8343 and Special Contract of April 30, 1985, which changed the zoning of Lot 254, Block 17, Coronado Hills, Section No. 1, City of El Paso, El Paso County, Texas, and to impose an additional condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 5940 Cadiz Street. Property Owner: Anthony Rallis. PZCR12-00005		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17873	9-18-2012	An Ordinance granting Special Permit No. PZST12-00009, to allow for infill development with reduced side yard setbacks, reduced rear yard setbacks and a parking reduction; and to allow a professional office in an A-2 (Apartment) zoning district, on the property described as Lot 15 and 16, Block 278, Pierce Finley Addition, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 1028 Rio Grande Avenue. Property Owners: Orlando & Dora Mondragon. PZST12-00009		Omitted
17874	9-18-2012	An Ordinance granting Special Permit No. PZST12-00007, to allow for a cemetery and mausoleum and approving a Detailed Site Development Plan on the property described as Tracts 24-A-1, 25-A, 25-C and a portion of Tracts 24-A and 29-A, Section 9, Block 81, Township 2, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.260 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 8700 Dyer Street. Property Owner: SCI Texas Funeral Services, Inc., d/b/a Restlawn Memorial Park. PZST12-00007		Omitted
17875	9-18-2012	An Ordinance granting Special Permit No. PZST11-00013, to allow for infill development with reduced lot width on the property described as all of Lots 21 and 20 Except the Westerly 3 Feet of 20, Block 73D, Logan Heights Addition First Revised Plat, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 3604 Keltner Avenue. Property Owner: Stone Nest LLC. PZST11-00013		Omitted
17876	9-18-2012	An Ordinance authorizing the City Manager to sign a Special Warranty Deed to convey 0.69 acres of city land under the jurisdiction of the El Paso Water Utilities Public Service Board, and consisting of a portion of Tennis West Estates, Block 2, Lot 35 and Upper Valley Surveys, Block 8, Tract 4B2, City of El Paso, El Paso County, Texas, near Westside Road and Lee Shannon Street to Lamar Skarda and spouse Connie Skarda, the sole responsive bidders, and authorizing the City Manager to sign any and all necessary documents to complete the conveyance and providing an effective date.		Omitted
17877	9-18-2012	An Ordinance amending Title 3 (Revenue and Finance) of the El Paso Municipal Code, Chapter 3.04 (Property Taxes) by amending Section 3.04.040 (Exemption - Residence Homestead) to increase the ad valorem property tax exemption for individuals who qualify under the current code.	1	3.04.040 A.
17878	9-18-2012	An Ordinance amending Title 12 (Vehicle and Traffic), Chapter 12.21 (Photographic Traffic Signal Enforcement System), of the El Paso City Code by amending Sections 12.21.010 (Definitions) and 12.21.070 (Effect of Liability; Exclusion of Civil Remedy; Enforcement), to provide that an unpaid civil penalty may be enforced by refusing to allow the registration of the vehicle; the penalty is as provided in Section 12.21.020 of the City Code.	1	12.21.010
			2	12.21.070 C.
			Added	12.21.070 D.

Ordinance Number	Approval Date	Description	Section	Section this Code
17879	9-18-2012	An Ordinance amending Title 12 (Vehicles and Traffic) and Chapter 12.08 (Administration and Enforcement) to create Section 12.08.191 (Refusal to Register Motor Vehicles Due to Outstanding Warrants Fee) of the El Paso City Code, to provide that due to the County Tax Assessor Collector's ability to refuse motor vehicle registration due to outstanding warrants for failure to appear or failure to pay a fine on a complaint that involves the violation of a traffic law, the City of El Paso is establishing a fee to be paid by the owner of that motor vehicle that will be forwarded to the County Tax Assessor Collector for their administrative costs.	1 Added	12.08.191
17880	9-18-2012	An Ordinance authorizing the City Manager to sign a Lease by and between the City of El Paso as Lessor and Mountain Star Sports Group, LLC - El Paso Baseball Club Series and Mountain Star Sports Group, LLC as Tenant covering Lots 1 through 10 and Lots 11 through 40, and a portion of the T-Alley, Block B, Stevens Addition and a Portion of Block 28 and 48, Mills Map Addition and a Portion of Franklin Street, El Paso, El Paso County, Texas containing 4.8274 acres of land more or less; a portion of Lots 30 through 42, Block C, Stevens Addition, El Paso, El Paso County, Texas containing 0.9521 acres of land more or less; and a portion of the Union Pacific Company right of way out of Blocks 28 and 48, Mills Map Addition, El Paso, El Paso County, Texas containing 0.1994 acres of land more or less ("City Hall Site").		Omitted
17881	9-18-2012	An Ordinance amending Ordinance No. 017850 for the purpose of clarifying the ballot language regarding the Venue Project and Hotel Occupancy Tax Proposition and resolving other matters related thereto.		Omitted
17882	10- 2-2012	An Ordinance amending Title 18 (Building and Construction), Chapter 18.18 (Outdoor Lighting Code) Sections 18.18.060 (Definitions), 18.18.240 (Laser Source Lighting), 18.18.250 (Searchlights) and 18.18.280 (Temporary Exemption Requirements) of the El Paso City Code, to increase the time for a temporary exemption permit for Laser Source Lights and Searchlights from three days to not more than thirty days, the penalty being as provided in Section 18.18.400 (Violations) of the El Paso City Code.	1	18.18.060
			2	18.18.240
			3	18.18.250
			4	18.18.280
			5	18.18.345
17883	10- 2-2012	An Ordinance vacating a portion of 9.5' alley adjacent to Lots 23 and 24, Block 1, Map of Orchard Addition, City of El Paso, El Paso County, Texas SURW12-00015 Applicant Information: Jaime Lopez, Jr., 204 Hardesty, El Paso, TX 79905		Omitted
17884	10- 2-2012	An Ordinance vacating a portion of 9.5' alley adjacent to Lots 19 and 20, Block 1, Map of Orchard Addition, City of El Paso, El Paso County, Texas SURW12-00012 Applicant Information: Jose D. Lucero, 210 Hardesty, El Paso, TX 79905		Omitted
17885	10- 2-2012	An Ordinance vacating a portion of 9.5' alley adjacent to Lots 10 and 11, Block 1, Map of Orchard Addition, City of El Paso, El Paso County, Texas SURW12-00002 Applicant Information: Eva R. Valles, 218 Hardesty, El Paso, TX 79905		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17886	10- 9-2012	An Ordinance amending Title 12 (Vehicles and Traffic) Chapter 12.32 (Pedestrians) of the El Paso City Code by repealing Section 12.32.060 (Soliciting Rides or Business - Prohibitions) and adopting a new Section 12.32.063 (Solicitation Prohibitions), to prohibit the aggressive solicitation of money or other services while at or near certain areas, and creating an offense; the penalty being as provided in Chapter 1.08 (General Penalty) of the El Paso City Code.	1 Rpld	12.32.060
			2 Added	12.32.063
17887	10-16-2012	An Ordinance authorizing the issuance of "City of El Paso, Texas, Combination Tax and Revenue Certificates of Obligation, Series 2012" and resolving matters which are necessary to effectuate said issuance, including a delegation of authority in an amount not to exceed $63 million.		Omitted
17888	10-16-2012	An Ordinance authorizing the issuance of "City of El Paso, Texas, General Obligation Refunding Bonds, Series 2012" and resolving matters which are necessary to effectuate said issuance, including a delegation of authority in an amount not to exceed $23,260,000.		Omitted
17889	10-16-2012	An Ordinance authorizing the City Manager to execute a Quitclaim (Tax Resale) Deed conveying all right, title and interest in real properties described as Lots 12 thru 14, inclusive, Block 57; Lots 15 thru 20, inclusive; Block 57, Lots 31 and 32; Block 57 and Lot 33, Block 57, Wilco Subdivision Unit No. 2, El Paso County, Texas, to John Kaba and Barbara Paul, in accordance with Section 34.05 (h) of the Tax Code.		Omitted
17890	10-16-2012	An Ordinance changing the zoning of Tract 17C63, Section 8, Block 79, Township 2, Texas and Pacific Railroad Surveys, City of El Paso, El Paso County, Texas from R-3 (Residential) to C-3 (Commercial) and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: Bob Hope Drive at Saint Romeo Avenue. Property Owner: Elizabeth G. Flores. PZRZ11-00047		Omitted
17891	10-16-2012	An Ordinance releasing all conditions placed on property by Ordinance No. 8786 and special contract of September 23, 1986, which changed the zoning of westerly 15' of Lot 9, all of Lots 10-12 and the easterly 20' of Lot 13, Block 7, Golden Hill Addition, City of El Paso, El Paso County, Texas, and to impose an additional condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Property Owner: Richard Sennessie - Lamina Investments, LLC. Subject Property: 1515 Golden Hill Terrace. PZCR12-00006		Omitted
17892	10-16-2012	An Ordinance changing the zoning of Lots 9-14, Block 25, Third Amended Map of Highland Park Addition, City of El Paso, El Paso County, Texas from R-5 (Residential) to S-D (Special Development) and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 2413 Tremont Avenue. Property Owner: Hector F. Barraza. PZRZ12-00022		Omitted
17893	10-30-2012	An Ordinance authorizing the issuance of "City of El Paso, Texas, Water and Sewer Revenue Refunding and Improvement Bonds, Series 2012A"; in an amount not to exceed $87,435,000 and resolving matters which are necessary to effectuate said issuance, including the delegation of matters relating to the sale and issuance of the Bonds to an authorized City Officer or employee within certain specified parameters.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17894	10-30-2012	An Ordinance granting Special Permit No. PZST12-00012, to allow for infill development with reduced lot area and reduced lot width on the property described as Lot 34, Block 12, Revised Map of Sahara Subdivision, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 5619 Saluki Drive. Property Owner: David Velasco. PZST12-00012		Omitted
17895	10-30-2012	An Ordinance changing the zoning of the following real property know as: Parcel 1: Lots 1 to 6 and portion of 7, Block 209, Alexander Addition, City of El Paso, El Paso County Texas, from C-1 (Commercial) to G-MU (General-Mixed Use); and , Parcel 2; Portion of Lots 7 to 10, Block 209, Alexander Addition City of El Paso, El Paso County, Texas, from C-1 (Commercial) to G-MU (General-Mixed Use); and , Parcel 3: Parcels 11 to 20, Block 209, Alexander Addition, City of El Paso, El Paso County, Texas, from A-O/SP (Apartment Office/Special Permit) to G-MU (General-Mixed Use), and repealing special permit no. SP93-04. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 2501 and 2025 North Mesa. Property Owner: EP Del Mesa Partners, LP. PZRZ12-00019		Omitted
17896	10-30-2012	An Ordinance changing the zoning of a portion of Lot 4, Block 1, of the Replat of Artcraft Park, City of El Paso, El Paso County, Texas From R-3 (Residential) to C-3 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 8000 Artcraft Road. Property Owners: Helen S. Coles, Otis C. Coles III and Suzanne E. Hubbard. PZRZ12-00013		Omitted
17897	10-30-2012	An Ordinance approving the "Southern Industrial Park Master Plan" as a study area plan to be incorporated into the City's comprehensive plan, Plan El Paso, and that the future land use map contained in the Plan El Paso be amended to incorporate the land uses contained in the "Southern Industrial Park Master Plan". PLRG12-00011		Omitted
17898	10-30-2012	An Ordinance amending Title 21 (SmartCode), Chapter 21.40 (Infill Community Plans), Section 21.40.020 (Infill Community Types), Section 21.40.070 (Special Requirements), and Chapter 21.80 (Tables), Section 21.80.240 (Table 16 Special District Standards) of the El Paso City Code, to clarify the SmartCode provisions, to calibrate the SmartCode to the local character of the place and local conditions for infill development, and to revise the Special District Standards Table; the penalty is as provided for in Chapter 21.60 of the El Paso City Code.	1	21.40.020
			2	21.40.070
			3	21.80.230
17899	10-30-2012	An Ordinance changing the zoning of the following legally described 13,786,305 sq. ft. tract of land being situated in portions of El Paso International Airport Tracts 1-11 and located in portions of Ascarate Grant, Tract 4, Block 2, within the City of El Paso, El Paso County, Texas from C-1 (Commercial), C-2/SP (Commercial/special permit), C-4 (Commercial), C-4/SP (Commercial/special permit), C-4/c (Commercial/condition), and M-1 (light manufacturing) to SCZ (SmartCode Zone). The penalty is as provided for in Chapter 21.60 of the El Paso City Code. PZRZ12-00026		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17900	10-30-2012	An Ordinance amending Title 18 (Building & Construction), Chapter 18.46 (Landscape), Sections 18.46.070 (Plans Required) and 18.46.110 (Irrigation Standards) and Chapter 18.47 (Irrigation Systems), Sections 18.47.080 (Irrigation Plan Design: Minimum Standards) and 18.47.090 (Design and Installation: Minimum Requirements) of the El Paso City Code, to add Architects & Engineers as permitted designed professionals for Landscape and Irrigation plans, and to move the Irrigation Standards from the Landscape Code to the Irrigation Systems Code, the penalty being as provided in Sections 18.46.320 (Violations-Penalty) and 18.47.180 (Enforcement) of the El Paso City Code.	1	18.46.070
			2	18.46.110
			3	18.47.080
			4	18.47.090
17901	10-30-2012	An Ordinance amending Ordinance No. 016874 which granted a special privilege license to ONIHC, L.L.C. permitting the encroachment onto public right-of-way of a sidewalk cafe located at 504 West San Antonio Avenue, to approve the assignment of the special privilege license from ONIHC, L.L.C. to Lava Entertainment Group, LLC and to adjust the annual fee for the special privilege license. (SPL07-00018)		Omitted
17902	10-30-2012	An Ordinance granting a special privilege license to Edgar Lopez for the construction, installation, maintenance, use, and repair of a pedestrian bridge and walkway within portions of City right-of-way along Wheeling Avenue adjacent to the property located at 2308 Wheeling Avenue (NESV12-00029)		Omitted
17903	11- 6-2012	An Ordinance amending Title 21 (SmartCode), Chapter 21.30 (New Community Plans), Section 21.30.100 (Environmental Standards) and Chapter 21.70 (Definitions) of the El Paso City Code, to add a new designation of utility green space specific to Transect Zone 1 and to add new definitions for the terms "conservation covenant", "stormwater open space" and "utility green space"; and to address interim plats and regulating plans. The penalty being as provided in Chapter 21.60 (Enforcement and Penalty) of the El Paso City Code.	1	21.10.040 E.
			2 Added	21.30.100 C., D.
			Rnbd	21.30.100 C.—J.
			as	21.30.100 E.—L.
17904	11- 6-2012	An Ordinance amending Title 20 (Zoning), Chapter 20.02 (General Provisions and Definitions), 20.10 (Supplemental Use Regulations), and Appendix A (Table of Permissible Uses) of the El Paso City Code to add a definition for "conservation covenant", "stormwater open space" and "utility green space", and to add standards for the use of utility green space. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.	1 Added	20.02.252
			Added	20.02.1031
			Added	20.02.1129
			2 Added	20.10.557
			3	Ch. 20, App. A

Ordinance Number	Approval Date	Description	Section	Section this Code
17905	11- 6-2012	An Ordinance amending Title 19 (Subdivisions), Chapter 19.03 (Preliminary Plat), Chapter 19.05 (Development Plats), Chapter 19.50 (Definitions) Chapter 19.08 (Construction Plans), Chapter 19.10 (Dedication, Construction Requirements and City Participation), and Chapter 19.20, (Parks and Open Space) of the El Paso City Code to amend the criteria for preliminary plat approval, to add an exception to the plat requirement, to add a definition for Conservation Covenant, Stormwater Open Space and Utility Green Space, to amend phasing plans for subdivision improvements, to amend the roadway participation policies and to add an exclusion for parkland dedication. The penalty is as provided in Chapter 19.42 of the City of El Paso City Code.	1	19.03.040 C.
			Added	19.03.040 K.
			2 Added	19.05.010 D.5.
			3	19.50.030
			4	19.08.010 D.
			5	19.10.050 B.2.
			6	19.20.060 I.
17906	12- 4-2012	An Ordinance to correct an error in Ordinance No. 017853 which amended conditions placed by Ordinance No. 06245 and placed one new condition on Lots 11 and 12, Block 2, Sahara Subdivision, City of El Paso, El Paso County, Texas and released conditions imposed by Ordinance No. 17313 on Lots 13 and 14, Block 2, Sahara Subdivision, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: Parcel 1: 9950 Dyer Street and Parcel 2: 9944 Dyer Street. Property Owner: Juan Gandara and, Antonio and Laura Mendoza. PZCR12-00002.		Omitted
17907	12- 4-2012	An Ordinance vacating a portion of Main Street, City of El Paso, El Paso County, Texas. Applicant: Mills Plaza Parking, L.P. & City of El Paso SURW12-00011.		Omitted
17908	12- 4-2012	An Ordinance vacating Morenci Street between Luna Street and Grama Street and being a street within the East El Paso Subdivision, City of El Paso, El Paso County, Texas. SURW12-00017.		Omitted
17909	12- 4-2012	An Ordinance vacating a 15' Drainage Right-of-Way between Lots 6 & 7, Block 7, Ranchos Del Sol Unit Two, City of El Paso, El Paso County, Texas. SURW12-00016.		Omitted
17910	12- 4-2012	An Ordinance granting a Lease to the University of Texas at El Paso of a single duct in a portion of the City's existing underground conduit system on Oregon Street between Glory Road and City Hall for their internal fiber optic telecommunications system and related interlocal services for installation services for installation of the fiber. The following consideration is to be paid to the City: Annual Lease Fee ($2,764.54) and reimbursement for costs of installing fiber.		Omitted
17911	12-18-2012	An Ordinance amending the 2025 Proposed Thoroughfare System, as incorporated into Plan El Paso, to delete a portion of Durango Street from Missouri Avenue to Franklin Avenue currently designated as a minor arterial, to downgrade a portion of Durango Street from Franklin Avenue to San Antonio Avenue from a minor arterial to a collector arterial, to downgrade a portion of Santa Fe Street from Yandell Drive to San Antonio Avenue from a major arterial to a minor arterial, to add Franklin Avenue as a collector arterial from Interstate Highway 10 to Durango Street, and to delete a portion of Missouri Avenue from Coldwell Street to Santa Fe Street currently designated as a minor arterial and collector arterial.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17912	12-18-2012	An Ordinance amending Title 3 (Revenue and Finance) Chapter 3.12 (Hotel Room Tax) of the El Paso City Code by amending Section 3.12.010 (Definitions); Section 3.12.050 (Rules and Regulations - Record Inspection Authority) and Section 3.12.070 (Violation - Penalty) and adding new Section 3.12.021 (Additional Tax Imposed for Approved Venue Project - Rate); Section 3.12.031 (Collection of Additional Tax - Approved Venue Project); Section 3.12.041 (Additional Tax - Reports and Remittances); Section 3.12.62 (Use of Additional Tax Proceeds - Venue Projects Fund) for the purpose of effectuating the Baseball Stadium Venue Project approved by the voters on November 6, 2012.	1	3.12.010
			2 Added	3.12.021
			3 Added	3.12.031
			4 Added	3.12.041
			5 Added	3.12.050 E.
			6 Added	3.12.061
			7 Added	3.12.070 D.
17913	12-18-2012	An Ordinance amending Title 3 (Revenue and Finance) Chapter 3.12 (Hotel Room Tax) of the El Paso City Code by amending Section 3.12.010 (Definitions) and adding criminal and other penalties for violations.	1	3.12.010 C.—E.
			2 Added	3.12.050 D.
			3	3.12.070
17914	12-18-2012	An Ordinance changing the zoning of the following legally described 451.3581 acre parcel of land situated within the corporate limits of the City of El Paso, El Paso County, Texas as Tract 1A, Section 19, a portion of Tract 1, Section 20, a portion of Tract 1, Section 29 and a portion of Tract 1, Section 30, Block 80, Township 1, Texas & Pacific Railway Company Surveys from R-F (Ranch and Farm) to SCZ (SmartCode Zone). Property Owner: City of El Paso. PZRZ12-00032		Omitted
17915	12-18-2012	An Ordinance annexing the following real property described as all of Tract 2C, Section 46, Block 79, Township 2, Texas and Pacific Railroad Company Surveys, and a portion of Ysleta - Carlsbad Cut-off Road (Zaragoza Road), El Paso County, Texas. Subject Property: southwest of the intersection of Pebble Hills Boulevard and Zaragoza Road, Property Owner: Genagra, LP and County of El Paso. AN08-009 (SUB08-00129)		Omitted
17916	12-18-2012	An Ordinance changing the zoning of Parcel 1: a portion of Tract 2C, Section 46, Block 79, Township 2, Texas and Pacific Railroad Company Surveys and a portion of Ysleta-Carlsbad Cut-Off Road (Zaragoza Road), El Paso County, Texas, from R-F (Ranch and Farm) to A-3, (Apartment); Parcel 2: a portion of Tract 2C, Section 46, Block 79, Township 2, Texas and Pacific Railroad Company Surveys and a portion of Ysleta-Carlsbad Cut-Off Road (Zaragoza Road), El Paso County, Texas, from R-F (Ranch and Farm) to C-3 (Commercial) and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: South of Pebble Hills Boulevard and West of Zaragoza Road. Property Owner: Genagra L.P. ZON08-00080		Omitted
17917	12-18-2012	An Ordinance granting a special privilege license to El Paso Community College for the construction, installation, maintenance and repair of a 1000 linear foot subsurface fiber optic cable within portions of City right-of-way beneath Rio Grande Avenue between Oregon Street and Kansas Street for a term of fifteen years with two renewable fifteen year terms. (NESV12-00012)		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17918	12-18-2012	An Ordinance authorizing the City Manager to sign a lease with Texas Tech University Health Science Center for the lease of the AB Fall Mansion located at 1725 Arizona, El Paso, Texas for a three year term at rental amount of one dollar per annum and two one-year extensions. Lessee will be responsible for all utilities, repair and maintenance during the term and any extensions.		Omitted
17919	12-18-2012	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.160 (Schedule XV - City Taxicab Zone) to add locations on Anthony Street and Durango Drive, the penalty being as provided in Sections 1.08.010—1.08.030 and 6.16.110, of the El Paso City Code.	1 Added	12.88.160 A.2., 3.
17920	12-18-2012	An Ordinance authorizing the City Manager to sign a contract of sale with El Paso Motorsports, Inc., dba Sun City Built, for the sale of property at 6212 Fiesta Drive, El Paso, Texas in the amount of $32,000.		Omitted
17921	12-18-2012	An Ordinance amending Title 18 (Building and Construction), Chapter 18.18 (Outdoor Lighting Code) Sections 18.18.060 (Definitions) and 18.18.150 (Recreational Facilities) of the El Paso City Code to exempt City Parks from the lumens per acre, the penalty being as provided in Section 18.18.400 (Violations) of the El Paso City Code.	1	18.18.060
			2	18.18.150
17922	1- 2-2013	An Ordinance amending Title 13 (Streets, Sidewalks and Public Places) Chapter 13.04 (Street and Sidewalk Construction and Maintenance), Section 13.04.070 (Installation of Sidewalk On Property On Which Building Permit Issued) of the El Paso City Code to amend the requirements for installation of sidewalks. The penalty being as provided in Section 13.08.140 of the El Paso City Code.	1	13.04.070
17923	1- 2-2013	An Ordinance amending Title 19 (Subdivisions), Chapter 19.21 (Sidewalks), Section 19.21.010 (Purpose and Applicability) of the City of El Paso City Code to amend the requirements for installation of sidewalks. The penalty being as provided in Chapter 19.42 of the City of El Paso City Code.	1	19.21.010 C.
17924	1- 8-2013	An Ordinance amending Title 5 (Business License and Permit Regulations) of the El Paso City Code by adding Chapter 5.17 (Credit Access Businesses) in order to set forth Registration Requirements and Credit Extension Guidelines, the penalty being provided in Section 5.17.030 (Violations; Penalty) of the El Paso City Code.	1 Added	5.17.010—5.17.130
17925	1- 8-2013	An Ordinance granting Special Permit No. PZST12-00014, to allow for infill development with reduced rear yard setbacks on the property described as being the East 90 feet of Lots 7 - 12 and the West 45 feet of the South 10 feet of Lot 7, Block 93, East El Paso Addition, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 3204 Montana Avenue. Property Owner: Enrique and Norma Garcia, PZST12-00014		Omitted
17926	1-15-2013	An Ordinance granting Special Permit No. PZST12-00010, to allow for infill development with reduced side street setbacks, reduced rear setbacks and a parking reduction, on the property described as Lot 1, Block 3, Beaumont Addition, an Addition to the City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 5600 Dyer. Property Owner: MCG Investments Inc. PZST12-00010		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17927	1-15-2013	An Ordinance amending Title 20 (Zoning), Chapter 20.10 (Supplemental Use Regulations), Section 20.10.680 (Temporary Uses), of the El Paso City Code to amend the application process and standards for temporary uses. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.	1	20.10.680
17928	1-15-2013	An Ordinance approving the Final Project Plan and Final Reinvestment Zone Financing Plan for Tax Increment Reinvestment Zone Number Six, City of El Paso, Texas.		Omitted
17929	1-15-2013	An Ordinance granting a special privilege license to C & J Property Corporation, (Owner) and RYZ Inc. (Lessee) for the construction, installation, maintenance, use, and repair of one loading dock and a loading area within portions of City right-of-way along Lee Street adjacent to the property located at 1602 Bassett Avenue for a term of ten years with one renewable ten year term. (NESV12-00042)		Omitted
17930	1-15-2013	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.190 (No Stopping or Standing at Any Time), Paragraph A.3.,of the El Paso City Code, to allow stopping and standing on the west side of Luna Street from Wheeling Avenue to Federal Avenue, the penalty being as provided in Section 12.84.010 of the El Paso City Code.	1	12.88.190 A.3.
17931	1-29-2013	An Ordinance changing the zoning of Blocks 88, 89, 116, 117, 118, 119, 123, 124, 125, a Portion of Block 154 and vacated Portions of El Paso Street, Los Angeles Street, Randolph Drive, Hague Road, Blacker Avenue, and Blanchard Avenue, Alexander Addition, City of El Paso, El Paso County, Texas from A-O/SC (Apartment-Office/Special contract) to C-2/SC (Commercial/Special contract). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 2001 N. Oregon. Property Owner: Tenet Hospitals Limited dba Providence Memorial Hospital. PZRZ12-00034		Omitted
17932	1-29-2013	An Ordinance changing the zoning of the following real property known as: Parcel 1: Portion of Lot 1, Block 11, Lomas Del Rey, Second Replat, City of El Paso, El Paso County, Texas, from R-3 (Residential) to C-1 (Commercial); and, Parcel 2: Portion of Lot 1, Block 11, Lomas Del Rey, Second Replat, City of El Paso, El Paso County, Texas, from R-3 (Residential) to C-1 (Commercial); and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 109 Argonaut. Property Owner: OSRO Holdings LLC, A Texas Limited Liability Company. PZRZ12-00033		Omitted
17933	1-29-2013	An Ordinance granting Special Permit No. PZST12-00020, to allow for infill development with reduced lot area and reduced lot width on the property described as Lot 5, Block 12, Revised Map of Sahara Subdivision, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 5616 Bagdad Avenue. Property Owner: Jose and Margarita Gutierrez. PZST12-00020		Omitted
17934	1-29-2013	An Ordinance changing the zoning of real property known as being all of Lots 1 and 15, Save and Except two Portions thereof, Block 3, and Lots 2 through 14, Block 3, WFF Industrial Park Unit One Replat "A", City of El Paso, El Paso County, Texas from M-1 (Manufacturing) to C-4 (Commercial) and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: east of Railroad Drive and south of Farah Drive. Property Owner: DBB Holdings, Inc. PZRZ12-00027		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17935	1-29-2013	An Ordinance granting a Special Privilege License to Chico's Tacos Inc. permitting the encroachment onto a portion of an alley adjacent to Block 2, Tobin's Washington Park Addition, El Paso, El Paso County, Texas, more commonly known as 4230 Alameda Avenue, to allow parking, signage, landscaping, vehicular and pedestrian traffic. (NESV13-00001)		Omitted
17936	1-29-2013	An Ordinance vacating a portion of 9.5' alley adjacent to Lots 4 and 5, Block, 1, Map of Orchard Addition, City of El Paso, El Paso County, Texas SURW12-00005		Omitted
17937	1-29-2013	An Ordinance authorizing the City Manager to sign a Contract of Sale and other necessary documents between the City of El Paso and Salomon & Martha Delgado which will allow the City to convey Lot 19, Block 130, Tierra Del Este #31, City of El Paso, El Paso County, Texas, 79938, El Paso, El Paso County to Salomon & Martha Delgado		Omitted
17938	1-29-2013	An Ordinance authorizing the City Manager to sign a Special Warranty Deed to convey 5.01 acres more or less, of city land under the jurisdiction of the El Paso Water Utilities Public Service Board, to the El Paso Electric Company, which land is described as a portion of the west half of Section 14, Block 81, Township 1, Texas & Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas located near Loma Real Avenue and Martin Luther King Blvd. in northeast El Paso, El Paso County, Texas and authorizing the City Manager to execute a Contract of Sale, Special Warranty Deed, and any other documents necessary, to complete the conveyance, to the El Paso Electric Company. The El Paso Water Utilities Public Service Board has declared the land inexpedient to the system.		Omitted
17939	2- 5-2013	An Ordinance approving a Detailed Site Development Plan for a Portion of Lot 8, Boothville Subdivision, City of El Paso, El Paso County, Texas, Pursuant to Section 20.04.150. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 8630 North Loop Drive. Property Owner: Socorro Benavente. PZDS12-00009		Omitted
17940	2- 5-2013	An Ordinance changing the zoning of a Portion of Lot 8, Boothville Subdivision, City of El Paso, El Paso County, Texas from R-F (Ranch-Farm) to P-R II (Planned Residential 2). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 8630 North Loop Drive. Property Owner: Socorro Benavente. PZRZ12-00023		Omitted
17941	2- 5-2013	An Ordinance granting Special Permit No. PZST12-00016, to allow for an assisted living facility on the property described as Lot 2, Block 1, Mount Latona Manor, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.320 of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 8230 Mount Latona. Property Owner: Bingham Investments Inc. PZST12-00016		Omitted
17942	2- 5-2013	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.44 (Stopping, Standing and Parking Generally) of the El Paso City Code, to add Section 12.44.290 (Restrictions On Parking in Downtown Parking Districts) to provide for the creation of downtown parking districts, issuance and revocation of temporary new resident and downtown parking permits and authorizing fees; the penalty being as provided in Chapters 12.84 (Violation - Penalty) and 12.85 (Parking Violations) of the El Paso City Code.	1 Added	12.44.290

Ordinance Number	Approval Date	Description	Section	Section this Code
17943	2- 5-2013	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.060 (Schedule VI-Parking Time Limited on Certain Streets) to add Alameda Avenue between Buena Vista Drive and Delta Drive, the penalty being as provided in Section 12.84.010 and Chapter 12.85 of the El Paso City Code.	1 Added	12.88.060 D.3.
17944	2- 5-2013	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.210 (Schedule XVIII - Restrictions on Commercial Vehicle Parking on Residential Streets) to delete San Antonio Avenue and Ochoa Street, the penalty being as provided in Section 12.84.010 and Chapter 12.85 of the El Paso City Code.	1 Added	12.88.210 1., 2.
17945	2- 5-2013	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.030 (Schedule III - Parking Prohibited at All Times on Certain Streets) to add Roseway Drive and Barker Road, the penalty being as provided in Section 12.84.010 and Chapter 12.85 of the El Paso City Code.	1 Added	12.88.030 377., 378.
17946	2- 5-2013	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.44 (Stopping, Standing and Parking Generally), Sections 12.44.180 (Regulations Pertaining to Certain Special Situations) and 12.44.200 (Disabled Parking on Private Property), to add a new offense for blocking an architectural improvement designed to aid persons with disabilities, the penalty as provided in Section 12.84.010 of the El Paso City Code.	1	12.44.180 B.11.
			2	12.44.200
17947	2- 5-2013	An Ordinance authorizing the City Manager to sign a Special Warranty Deed conveying 15.0073 acres, described as a Portion of Section 21, Block 81, Township 1, Texas & Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas located north of U.S. 54 and near the northwest corner of Marcus Uribe and Robert Lennox Drive in northeast El Paso and to execute a Contract of Sale, and any other documents necessary to complete the sale, to the El Paso Independent School District. The El Paso Water Utilities Public Service Board has declared the land inexpedient to the system.		Omitted
17948	2- 5-2013	An Ordinance authorizing the City Manager to sign a Special Warranty Deed to convey 50.7072 acres more or less, described as a Portion of Section 19, Block 81, Township 1, Texas & Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas located in the northeast corner of Sean Haggerty and Loma Real Avenue and authorizing the City Manager to execute a Contract of Sale, and any other documents necessary to complete the sale, to the El Paso Independent School District. The El Paso Water Utilities Public Service Board has declared the land inexpedient to the system.		Omitted
17949	2-19-2013	An Ordinance amending Title 2 (Administration and Personnel), Chapter 2.92 (Ethics), Section 2.92.100 (Campaign Finances), Paragraph 2.92.100 (d) (Required Filings) to require Electronic Filing of Campaign Contribution and Expenditure Reports filed with the City Clerk's Office.	1	2.92.100 D.
17950	2-19-2013	An Ordinance amending Title 15 (Public Services), Chapter 15.08 (Street Rentals), Section 15.08.120 (Special Privilege Licenses and Permits) Subsection F (Fees) to allow flexibility in identifying annual fees for special privilege licenses and permits granted in the Tax Increment Reinvestment Zones. Penalty is as provided in Section 15.08.125 of the El Paso City Code.	1 Added	15.08.120 F.5.
17951	2-19-2013	An Ordinance vacating Carmelo Court, being a 52' Right-Of-Way in Block 1, Las Palmas Commercial Park Replat "A", City of El Paso, El Paso County, Texas.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17952	2-19-2013	An Ordinance vacating Alexis Court, being a 52' Right-Of-Way in Block 1, Las Palmas Commercial Park Replat "A", City of El Paso, El Paso County, Texas.		Omitted
17953	2-19-2013	An Ordinance amending Ordinance No. 017917 which granted a Special Privilege License to El Paso Community College permitting the construction, installation, maintenance and repair of 1000 linear foot subsurface fiber optic cable within portions of City right-of-way beneath Rio Grande Avenue between Oregon Street and Kansas Street, to clarify Section 9, Insurance, and Grantee's Liability as a Public Institution of Higher Education. (NESV12-00012)		Omitted
17954	2-19-2013	An Ordinance amending Ordinance 017828 allowing a reduction of certain development fees specified in Title 18, Title 19, and Title 20 of the El Paso City Code for areas identified in the City's Sustainable City Centers Incentive Policy, to remove the requirement that the property be zoned smart-code, add additional incentive areas and extend the ending date for the reduction in fees.		Omitted
17955	2-19-2013	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.150 (Schedule XIV - Speed Limits), Paragraph 12.88.150 (L) (Speed Limits on Loop 375, the Freeway and Frontage Roads), Sub-Paragraphs 12.88.150(L)(2)(a) and 12.88.150(L)(2)(b)(Speed Limit on the Freeway), to amend existing speed limits, the penalty being as provided in Chapter 1.08 (General Penalty) of the El Paso City Code.	1	12.88.150 L.2.a., b.
17956	2-19-2013	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.150 (Schedule XIV-Speed Limits) to amend Speed Limits on Mesa Street and to delete obsolete temporary Construction Zone Speed Limits on various city streets, the penalty being as provided in Sections 1.08.010-1.08.030 and 6.16.110, of the El Paso City Code.	1 Rpld	12.88.150 O.5.
			2	12.88.150 O.6.
			3 Rpld	12.88.150 T.
			Rpld	12.88.150 Y.
			Rpld	12.88.150 BB.—FF.
			Rpld	12.88.150 HH.—JJ.
17957	2-19-2013	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.44 (Stopping, Standing and Parking Generally), Section 12.44.180 (Regulations Pertaining to Certain Special Situations), Paragraph 12.44.180(B)(22) reserved for city police department, officially marked vehicles, Subparagraph 12.44.180(B)(22)(b) to relocate reserved police department spaces, the penalty being as provided in Section 12.84.010 and Chapter 12.85 of the El Paso City Code.	1	12.44.180 B.22.b.
17958	2-19-2013	An Ordinance amending Title 3 (Revenue and Finance), Chapter 3.04 (Property Taxes), Section 3.04.050 (Delinquent Taxes-Installment Payments) of the El Paso City Code to grant the Tax Assessor the authority to require an initial down payment before or at the time of execution of an installment payment agreement and to prosecute pending tax suits filed prior to the execution of an installment payment agreement and defer enforcement of judgment of such suit for installment payment plans that are current.	1	3.04.050 A.
				3.04.050 I.
17959	2-19-2013	An Ordinance amending Ordinance No. 017351 authorizing the City of El Paso to sell the property municipally known and numbered as 800 S. Piedras aka 2914 E. Paisano to International Communications of El Paso, Inc. to correct the metes and bounds description for the property and re-allocate the proceeds of sale.		Omitted

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17960	2-19-2013	An Ordinance amending Title 20 (Zoning), Chapter 20.02 (General Provisions And Definitions), Chapter 20.18 (Sign Regulations) Article I (General Provisions), Article II (Administration), Article III (Billboard Regulations), and Article IV (On-Premises Sign Regulations), Chapter 20.22, (Nonconforming Situations), of the El Paso City Code to exclude from the Provisions of Chapter 20.18, All Bus Bench Advertising Authorized through the City's Franchise Agreement, to add a Definition for Superregional Shopping Centers, to establish Standards for Superregional Shopping Center Changeable Electronic Variable Message (CEVM) Signs, to allow and establish Standards for CEVM Billboard Displays; to amend the Permitting and Registration Requirements for Billboards; and to establish an Exchange Rate for the Conversion of Static Billboards to CEVM Billboards and to clarify the maintenance allowed on Nonconforming Signs. The penalty is as provided in Chapter 20.24 of the El Paso City Code.	1	Added	20.02.871
			2		20.18.020 C.
			3		20.18.100 A.
			4	Added	20.18.110 B.3.
			5		20.18.120
			6		20.18.140 A.
					20.18.140 O.
					20.18.140 T.
				Added	20.18.140 U.
			7	Added	20.18.210
			8		20.18.210
			9		20.18.220
			10		20.18.230
			11		20.18.240
			12		20.18.250
			13		20.18.260
			14		20.18.280
			15		20.18.290
			16		20.18.300
			17	Added	20.18.405
			18		20.22.090 A.
17961	2-26-2013	An Ordinance of the City Council of the City of El Paso, Texas, calling a Special Election for the submission of Charter Amendments to be held within the City, on May 11, 2013; making provisions for the conduct of the election and other provisions incident and related to the purpose of this Ordinance.			Omitted
17962	3- 5-2013	An Ordinance amending Title 21 (SmartCode), Chapter 21.30 (New Community Plans), Chapter 21.50 (Building Scale Plans), Chapter 21.70 (Definitions), and Chapter 21.80 (Tables), Section 21.80.240 (Table 16 Special District Standards) of the El Paso City Code to add the Northwest Park Special District and standards for that district, and to clarify the SmartCode provisions. The penalty being as is provided in Chapter 21.60 of the El Paso City Code.	1		21.30.050 C.
					21.30.050 E.
			2		21.30.060 C.
			3		21.30.070 C.
			4		21.30.100 L.
			5		21.30.060 B.
			6		21.50.070 A.
			7		21.50.080 A.
			8		21.50.100 A.
					21.50.100 E.

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			9	21.50.110 A.
				21.50.110 F.
				21.50.110 I.
				21.50.110 J.
				21.50.110 K.
			10	21.50.120 A.
				21.50.120 C.
				21.50.120 E.
			11	21.50.130 A.
				21.50.130 D.
			12	21.70.010
			13(Exh. A)	21.80.230
17963	3- 5-2013	An Ordinance changing the zoning of a 484.7490 acre parcel of land legally describes as a portion of Nellie D. Mundy Survey No. 246; a portion of Section 9, Block 82, Township 1, Texas and Pacific Railway Company Surveys; and a portion of Tract 1, S. J. Larkin Survey No. 269, all being located within the corporate limits of the City of El Paso, El Paso County, Texas from URD (Urban Reserve District) and R-3 (Residential) to SCZ (SmartCode Zone); and changing the zoning of a 1,175.2332 acre parcel of land legally described as all of S. J. Larkin Survey No. 267; a portion of Nellie D. Mundy Survey No. 246; a portion of Tract 1, S. J. Larkin Survey No. 268; and a portion of Tract 1A, S. J. Larkin Survey No. 269, all being located within the corporate limits of the City of El Paso, El Paso County, Texas from URD (Urban Reserve District) to SCZ (SmartCode Zone). The penalty is as provided for in Chapter 21.60 of the El Paso City Code. Property Owner: City of El Paso. PZRZ12-00041		Omitted
17964	3- 5-2013	An Ordinance authorizing the City Manager, to sign a Fee Simple Determinable Deed Without Warranty to convey approximately 658.2954 acres, located within the City of El Paso, El Paso County Texas, for portions of Nellie D. Mundy Survey No. 246; Portions of Tract 1, S.J. Larkin Survey No. 268; Portions of Tract 1A, S.J. Larkin Survey No. 269; and all of S.J. Larkin Survey No. 267; generally located on both sides of Transmountain Road west of the Franklin Mountains, and East of 1-10, and authorizing the City Manager to execute a Contract of Sale, and any other documents necessary to complete the sale to the Texas Parks & Wildlife Department, for inclusion in the Franklin Mountains State Park. The El Paso Water Utilities Public Service Board has declared the land inexpedient to the system.		Omitted
17965	3- 5-2013	An Ordinance granting Special Permit No. PZST12-00019, to allow for a medical treatment facility on the property described as a portion of Tract 9, SA, and 11, Block 11, Upper Valley Surveys, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.320 of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 6297 Strahan Road. Property Owner: Gallego Dream Continues, LLC. PZST12-00019		Omitted
17966	3- 5-2013	An Ordinance granting Special Permit No. PZST12-00013, to allow for infill development with reduced lot width and cumulative front and rear yard setbacks on the property described as Lot 1 - 13, Block 1, San Angelino Estates, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 5701—5724 Azzulina Court. Property Owner: Mario Ornelas I ANVIA, LLC. PZST12-00013		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17967	3- 5-2013	An Ordinance to correct an error in Ordinance No. 17904which amended Title 20 (Zoning), Chapter 20.02 (General Provisions and Definitions) of the El Paso City Code to amend Article II (Definitions) through the addition of a definition for Utility Green Space labeled 20.02.1128; renumbering said definition as 20.02.1129; on November 6, 2012, City of El. Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.	1	20.02.1129
17968	3- 5-2013	An Ordinance amending Title 18 (Building and Construction), of the El Paso City Code by repealing Chapter 18.40 (Vacant Buildings) in its entirety and adopting a new Chapter 18.40 (Vacant Buildings) in its place, to reduce the time frame within which a building must register, increase the occupancy requirements, revise the registration and fire protection requirements and provide an adaptive reuse alternative; the penalty being as provided in Section 18.40.130 (Penalty) of the El Paso City Code.	1 Rpld	18.40.010—18.40.140
			Added	18.40.010—18.40.130
17969	3- 5-2013	An Ordinance amending Title 9 (Health and Safety), Chapter 9.52 (Fire Prevention Code), Section 9.52.030.14 to amend the Miscellaneous Combustible Material Operational Permit language in Section 105 of the International Fire Code; to amend Section 9.52.030.16 to require a Certificate of Occupancy for the issuance of an operational permit; to amend Section 9.52.050.5 to add criteria for miscellaneous combustible materials storage; the penalty as provided in Section 9.52.030.19 (Violation Penalties) of the El Paso City Code.	1	9.52.030.14.
			2 Added	9.52.030.16.
			Rnbd	9.52.030.16—9.52.030.19.
			as	9.52.030.17—9.52.030.20.2
			3	9.52.050.5
17970	3-19-2013	An Ordinance changing the zoning of a Portion of Lots 1, 2, and 6, Block 6, Stiles Gardens, City of El Paso, El Paso County, Texas from C-1/SC (Commercial/Special Contract) and A-2 (Apartment) to SO (Special Development). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 7200—7202 North Loop. Property Owner: Victor and Rosa Gonzalez. PZRZ12-00038		Omitted
17971	3-19-2013	An Ordinance releasing all conditions placed on property by Ordinance No. 4810 and Special Contract of March 28, 1972, which changed the zoning of a Portion of Lots 1, 2, and 6, Block 6, Stiles Gardens, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 7200-7202 North Loop. Property Owner: Victor & Rosa Gonzalez. PZCR12-00008		Omitted
17972	3-19-2013	An Ordinance amending Ordinance No. 017764 which amended Ordinance No. 017524 which amended Ordinance No. 017109 which vacated a portion of Boston Avenue, to allow a three year extension to complete improvements on the pedestrian walkway and to revise the quitclaim deed to reflect the extended time for completion. Applicant: EP Marcus Investments, L.P. and EP Del Mesa Partners, L.P. Subject Property: Boston Avenue between Mesa St. and Oregon St.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17973	3-19-2013	An Ordinance authorizing the City Manager to sign a Lease with the El Paso City Employees Pension Fund for the lease of approximately 1,934 square feet of office space in the building located on 51 feet on Leon Street x 120 feet on San Antonio Street, more particularly being a portion of Block 46, Mills Addition, El Paso, El Paso County, Texas, being municipally known and numbered as 400 W. San Antonio Street, El Paso, Texas., for an initial five-year term and initial rental amount of $11,604 per annum, increasing to $15,472 in years 4-5 and two five-year options to extend with annual 2% rental increases, the cost for the initial year to be paid by the City.		Omitted
17974	3-19-2013	An Ordinance authorizing the City Manager to sign a Contract of Sale and other necessary documents between the City of El Paso and Susana Contreras which will allow the City to convey Lot 16, Block 17, Sun Ridge #5, City of El Paso, El Paso County, Texas, 79938 also known as and numbered as 12364 Robert Dahl Dr., El Paso, Texas, to Susana Contreras.		Omitted
17975	3-19-2013	An Ordinance authorizing the City Manager to sign a Contract of Sale and other necessary documents between the City of El Paso and Ivan Guerrero & Luz Molina which will allow the City to convey Lot 24, Block 3, Sombras Del Sol #2, City of El Paso, El Paso County, Texas, 79938 also known as and numbered as 12497 Jon Evans, El Paso, Texas, to Ivan Guerrero & Luz Molina.		Omitted
17976	3-19-2013	An Ordinance granting a non-exclusive franchise to "Bin There Dump That," to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the terms and conditions described in the ordinance; the penalty as provided in Section 9.04.630 of the El Paso City Code.		Omitted
17978	4- 2-2013	An Ordinance releasing all conditions placed on property by Special Contract of December 26, 1984, attached to Ordinance No. 8239, which changed the zoning of the Lots 15 to 23, Block 212, Alexander Addition Replat "A", City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 2600 Oregon. Property Owner: El Paso Murchison Oregon Investors LLC I McDyer LLC. PZCR13-00001		Omitted
17979	4- 2-2013	An Ordinance providing for a waiver of certain fees for special event permits as required in Title 5, Title 12, and Title 13 of the El Paso City Code.		Omitted
17980	4- 2-2013	An Ordinance amending Title 5 (Business License and Permit Regulations), Chapter 5.03 (Charitable Solicitations), Chapter 5.15 (Vendors and Solicitors) of the El Paso City Code, to repeal Charitable Solicitation permits and to exempt certain vendors from the license requirement. The penalties are provided in Chapter 5.01.100 of the El Paso City Code.	1 Rpld	5.03.010—5.03.150
			2	5.15.090 D.
17981	4- 2-2013	An Ordinance amending Title 9 (Health and Safety), Chapter 9.40 (Noise), of the El Paso City Code, to exempt certain special privilege license and permits from the Noise Ordinance. The penalties are provided in Chapter 9.40.140 of the El Paso City Code.	1	9.40.120 B.
17982	4- 2-2013	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.56 (Parking Meters), of the El Paso City Code, to exempt parking meter fees for special privilege license and permits. The penalties are provided in Chapter 12.84.010 of the El Paso City Code.	1	12.56.020 F.

Ordinance Number	Approval Date	Description	Section	Section this Code
17983	4- 2-2013	An Ordinance amending Title 13 (Streets, Sidewalks, and Public Spaces), Chapter 13.28 (Sound Amplifying Devices) and Chapter 13.32 (Temporary Events) of the El Paso City Code/to exempt certain special privilege license and permit events from the sound amplification permit fee and to amend the payment and cancelation policy for a special privilege license and permit. The penalties are provided in Chapter 13.32.090 of the El Paso City Code.	1	13.28.020
			2	13.32.030 C.
			3	13.32.050 E.
17984	4- 2-2013	An Ordinance amending Title 15 (Public Services), Chapter 15.08 (Street Rentals) of the El Paso City Code, to delete certain additional costs and fees associated with certain special privilege license and permits. The penalty is provided in Chapter 15.08.070 of the El Paso City Code.	1	15.08.120 O.6.
17985	4- 2-2013	An Ordinance granting a First Amendment to lease to the University of Texas at El Paso regarding the relocation a portion of the City's existing underground conduit system in downtown and south El Paso for their internal fiber optic telecommunications system and related interlocal services for installation of the fiber. As consideration, the lessee shall pay certain relocation costs and the annual lease fee ($2,764.54) shall remain the same.		Omitted
17986	4- 2-2013	An Ordinance granting a First Amendment to lease to Transtelco Inc. regarding the relocation of a portion of the City's existing underground conduit system in downtown and south El Paso for a fiber optic cable telecommunications system. As consideration the lessee shall pay certain relocation costs and the annual lease fee ($12,524.70) shall remain the same.		Omitted
17987	4- 9-2013	An Ordinance authorizing the City Manager to sign a Memorandum of Agreement and any other necessary documents between the City of El Paso and Union Pacific Railroad Company which will allow the City to convey approximately 2 acres of land being a portion out of the 11.87 acres conveyed to the City of El Paso by El Paso Union Passenger Depot Company, according to the Deed recorded in Volume 901, Page 1134, Real Property Records of El Paso County Texas, and a strip of City land adjacent to San Francisco Street and Coldwell Street as the streets are shown on recorded Campbell Addition Plat to the City of El Paso.		Omitted
17988	4-16-2013	An Ordinance changing the zoning of a Portion of Lot 1, Wells Park Addition, and a Portion of Tract 20-A, Section 32, Block 79, Township 2, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas from R-3 (Residential) to C-1 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: south of Montana Avenue and west of Joe Battle Boulevard. Property Owner: Trevino Lock and Key Shop/ Linda Y. Mohr and Robert J. Melton/Carol Witz Robertson. PZRZ12-00043		Omitted
17989	4-16-2013	An Ordinance changing the zoning of Lots 9-10, Block 2, Sahara Subdivision, City of El Paso, El Paso County, Texas from R-4 (Residential) to C-2 (Commercial) and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 9934 Dyer Street. Property Owner: Sang and Mario Ornelas. PZRZ12-00045		Omitted
17990	4-16-2013	An Ordinance amending Ordinance No. 15108 which created the Greater El Paso Civic, Convention and Tourism Advisory Board. This amendment will: 1) remove a restriction that prohibited current and former employees to serve as members of the advisory board; 2) remove the Director of Economic Development as Secretary to the Advisory Board and replace with the General Manager of the Convention and Visitors Bureau or of his or her designee.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
17991	4-16-2013	An Ordinance authorizing the City Manager to sign a transmission/distribution easement with the El Paso Electric Company for an easement with continuous access to enter and to erect, construct, operate and maintain equipment, and a line of towers for transmission and distribution of electric energy, and all necessary foundations, footings, crossarms and appliances, and an underground system supporting the transmission lines on a portion of the public park known as Esmeralda Park and Ellis Lateral Linear Trail, in the amount of $19,250.00 and other good and valuable consideration.		Omitted
17992	4-30-2013	An Ordinance amending Ordinance No. 017886 which amended Title 12 (Vehicles and Traffic), Chapter 12.32 (Pedestrians) of the El Paso City Code by repealing Section 12.32.060 (Soliciting Rides or Business-Prohibitions) and adopted a new Section 12.32.063 (Solicitation Prohibitions) to amend Section 12.32.063(a) (Definitions) by amending the definition of aggressive manner and adding definitions of "intimidate" and "threatening conduct", and amend Section 12.43.063(b)(1)(b) by deleting Sections 12.43.063(b)(1)(b)(i—vii) & (ix—x).	1	12.32.063 A., B.
17993	4-30-2013	An Ordinance changing the zoning of a portion of Section 6, Block 82, Township 1, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas from P-MD (Planned Mountain Development) to Q (Quarry) and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: north of Transmountain Road and east of Desert Boulevard. Property Owner: Jobe Materials, LP. PZRZ13-00005		Omitted
17994	4-30-2013	An Ordinance changing the zoning of all of Lot 2, Block 1, Keystone Business Park Replat "A", City of El Paso, El Paso County, Texas from P-I/sc (Planned Industrial/special contract) to C-4/sc (Commercial/special contract). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 4529 Osborne Drive. Property Owner: Luis R. DeStefano. PZRZ12-00025		Omitted
17995	4-30-2013	An Ordinance changing the zoning of a portion of Lot 1, Sunnyfields, City of El Paso, El Paso County, Texas from R-4 (Residential) to C-3 (Commercial) and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 7704 Alameda Avenue. Property Owner: Roberto Pacheco. PZRZ12-00037		Omitted
17996	4-30-2013	An Ordinance granting a Special Privilege license to Texas Tech University Health Sciences Center for the construction, maintenance, use and repair of a surface parking lot within portions of City right-of-way along Alberta Avenue beneath the Raynolds Street overpass bridge for a term of four years with a renewable four year term followed by an additional two year term (NESV12-00039)		Omitted
17997	4-30-2013	An Ordinance granting a franchise to Dominion Ambulance, LLC to operate a non-emergency ambulance transfer service.		Omitted
17998	4-30-2013	An Ordinance granting a franchise to Elite Medical Transport of Texas, LLC to operate a non-emergency ambulance transfer service.		Omitted
17999	4-30-2013	An Ordinance granting a franchise to Life Ambulance Service, Inc. to operate a non-emergency ambulance transfer service.		Omitted
18000	4-30-2013	An Ordinance amending Ordinance Nos. 016796, 016927, 016928, 016793, 016795, 016929 in their entirety, granting a non-exclusive franchise to El Paso Bench ADS, LLC, to place benches at bus stops on city rights of way pursuant to the El Paso City Code; the penalties being as provided in Section 13.20.110 of the El Paso City Code.		Omitted

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18001	4-30-2013	An Ordinance amending Ordinance No. 016925 in its entirety, granting a non-exclusive franchise to River Elms, LLC, to place benches at bus stops on city rights of way pursuant to the El Paso City Code; the penalties being as provided in Section 13.20.110 of the El Paso City Code.		Omitted
18002	4-30-2013	An Ordinance amending Ordinance No. 016794 in its entirety, granting a non-exclusive franchise to Pinnacle Media, LLC, to place benches at bus stops on city rights of way pursuant to the El Paso City Code; the penalties being as provided in Section 13.20.110 of the El Paso City Code.		Omitted
18003	4-30-2013	An Ordinance amending Title 18 (Building and Construction), Chapter 18.44 (Grading), Section 18.44.150 (Work Hours Specified), of the El Paso City Code, to provide a permit process for after hours grading, the penalty being as provided in Sections 18.02.111 (Violations and Penalties) and 18.44.201 (Penalty - Severability) of the El Paso City Code.	1	18.44.150
18004	4-30-2013	An Ordinance amending Title 18 (Building and Construction), Chapter 18.02 (Building And Construction Administrative Code), of the El Paso City Code, to add Section 18.02.105.20.1 establishing construction work hours and providing a permit process for afterhours construction work, the penalty being as provided in Section 18.02.111 (Violations And Penalties) of the El Paso City Code.	1 Added	18.02.105.20.1—18.02.105.20.4
18005	4-30-2013	An Ordinance amending Title 9 (Health and Safety), Chapter 9.40 (Noise), Section 9.40.120 (Exemptions), Paragraph D (Exemptions Associated with Construction) of the El Paso City Code, to amend the exemption for construction during established construction work hours and to provide a permit process for exemption for construction after hours, legal holidays and weekends, the penalty being as provided by Section 9.40.140 (Violation - Penalty) of the El Paso City Code.	1	9.40.120 D.
18006	5- 7-2013	An Ordinance annexing the following real property described as a portion of Cherrington Street, southerly of Vista Del Sol Drive, within Gateway Estates, El Paso County, Texas. Subject Property: south of the Intersection of Vista Del Sol Drive and Cherrington Street. Property Owner: County of El Paso SUAX12-00001		Omitted
18007	5- 7-2013	An Ordinance vacating a portion of San Francisco Street as shown on the Mills map and Campbell's Addition, City of El Paso, El Paso County, Texas. SURW13-00011		Omitted
18008	5- 7-2013	An Ordinance changing the zoning of all of Tract 3C, Block 47, Ysleta Grant, City of El Paso, El Paso County, Texas from R-4 (Residential) to S-D (Special Development) and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 9399 Alameda Avenue. Property Owner: Kathleen Louise Key. PZRZ12-00040		Omitted
18009	5- 7-2013	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.150 (Schedule XIV - Speed Limits) Paragraph F (Thirty-Five Miles Per Hours), of the El Paso City Code, to add new speed limits, the penalty being as provided in Chapter 1.08 (General Penalty) of the El Paso City Code.	1 Added	12.88.150 F.95.—97.
18010	5- 7-2013	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.030 (Schedule III - Parking Prohibited At All Times On Certain Streets), of the El Paso City Code, to add Weston Brent Lane, the penalty being as provided in Section 12.84.010 and Chapter 12.85 of the El Paso City Code.	1 Added	12.88.030 379.

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18011	5-21-2013	An Ordinance changing the zoning of Lots 9-14, Block 25, Third Amended Map of Highland Park Addition, City of El Paso, El Paso County, Texas from R-5 (Residential) to S-D (Special Development) and repealing Ordinance No. 017892, approved October 16, 2012 that changed the zoning of Lots 9-14, Block 25, Third Amended Map of Highland Addition, City of El Paso, El Paso County, Texas from R-5 (Residential) to S-D (Special Development) and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 2413 Tremont Avenue. Property Owner: Hector F. Barraza. PZRZ12-00022		Omitted
18012	5-21-2013	An Ordinance granting Special Permit No. PZST12-00015, to allow for infill development with reduced front setback, reduced rear setback, reduced side setback, a parking reduction and to allow for a 50% increase in density on the property described as Lots 9 through 14, Block 25, Third Amended Map of Highland Park Addition, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 2413 Tremont. Property Owner: Hector F. Barraza. PZST12-00015		Omitted
18013	5-21-2013	An Ordinance granting Special Permit No. PZST12-00018, to allow for infill development with reduced rear setback on the property described as a portion of Lots 30 through 32, Block 117, East El Paso Addition, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 1216 Copia Street. Property Owner: Victor M. Olivas and Estela Herrera. PZST12-00018		Omitted
18014	5-21-2013	An Ordinance vacating portions of two easements generally located on the access road of Loop 375 S (Joe Battle Boulevard) from Rojas Drive going north 1,950 feet; and the access road of Loop 375 N (Americas Avenue) to a point going 1,000 feet from A&M Circle; and authorizing the City Manager to sign Quitclaim Deeds and any other documents necessary to convey the City's interest to the State of Texas. SUET13-00002		Omitted
18015	5-21-2013	An Ordinance granting Special Permit No. PZST12-00024, to allow for a 100% Parking Reduction and Infill Development with reduced rear, side, and side street yard setbacks on the property described as Lots 15-16, Block 88, Bassett Addition, City of El Paso, El Paso County, Texas, Pursuant to Section 20.04.320 Special Permit and 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 2500 Montana Avenue. Property Owner: AVSS Technologies, LLC. PZST12-00024		Omitted
18016	5-21-2013	An Ordinance granting Special Permit No. PZST13-00002, to allow for a helistop on the property described as Lots 6-15, Block 91, Alexander Addition, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.240 of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 1800 N. Oregon Street. Property Owner: HCA Health Service. PZST13-00002		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18017	5-21-2013	An Ordinance granting Special Permit No. PZST13-00006, to allow for Infill Development with reduced lot area, lot width, and cumulative front/rear yard setbacks on the property described as Lots 26-28, Block 3, Sahara Subdivision, City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 9915, 9919, and 9923 Taj Mahal Street. Property Owner: David Velasco. PZST13-00006		Omitted
18018	5-21-2013	An Ordinance authorizing the City Manager to execute a Quitclaim (Tax Resale) Deed conveying all right, title and interest in real properties described as Lots 20 and 21, Block 50, Grandview Addition, an addition to the City of El Paso, El Paso County, Texas, as described in Volume 321, Page 1596, deed records of El Paso County, Texas, to MAL Development, Inc., in accordance with Section 34.05 (h) of the Tax Code.		Omitted
18019	5-28-2013	An Ordinance approving a Master Lease Agreement and consenting to the issuance of the "City of El Paso Downtown Development Corporation Special Revenue Bonds, Series 2013A (Downtown Ballpark Venue Project)" and "City of El Paso Downtown Development Corporation Special Revenue Bonds, Taxable Series 2013B (Downtown Ballpark Venue Project).		Omitted
18020	6- 4-2013	An Ordinance amending Title 20 (Zoning), Chapter 20.02 (General Provisions and Definitions), Article II Definitions of the El Paso City Code to amend the definition of transitional housing and to allow for the expiration of special permits for transitional homes. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.	1	20.02.1105
18021	6- 4-2013	An Ordinance granting Special Permit No. PZST12-00025, to allow for a transitional housing facility on the property described as Lots 11 - 13, Block 273, Campbell Addition, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.320 of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 1020 Campbell Street. Property Owner: La Posada Home, Inc. PZST12-00025		Omitted
18022	6- 4-2013	An Ordinance changing the zoning of a portion of the North Gate Outlet Channel R.O.W. out of Castner Heights Unit One, an Addition to the City of El Paso, El Paso County, Texas from R-4 (Residential) to C-4 (Commercial) and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: south of Diana Drive and east of Gateway North Boulevard. Property Owner: El Paso Water Utilities - Public Service Board and City of El Paso. PZRZ12-00031		Omitted
18023	6- 4-2013	An Ordinance granting Special Permit No. PZST12-00011, to allow for infill development on the property described as Lot 15 and 16, Block 44, Harts Survey No. 9, City of El Paso, El Paso County, Texas, pursuant to section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 906 N. Mesa Street. Property Owner: DDDG Investments II, L.P. PZST12-00011		Omitted
18024	6- 4-2013	An Ordinance changing the zoning of a 7.645 acre parcel of land legally described as being all of Lot 2 and a portion of Lots 1 and 3, University Center as filed in Volume 23, Page 35, El Paso County Deed Records, El Paso County, Texas from C-1 (Commercial) and C-3 (Commercial) to SCZ (SmartCode Zone). The penalty is as provided for in Chapter 21.60 of the El Paso City Code. Property Owner: Board of Regents of the University of Texas. PZRZ13-00009		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18025	6- 4-2013	An Ordinance amending Title 2 (Administration and Personnel), Chapter 2.16 (Zoning Board of Adjustment), Section 2.16.050 (Special Exceptions), of the El Paso City Code to clarify first floor area of the dwelling in the requirements for the Special Exception for Carport over a Driveway. The penalty is as provided in Chapter 20.24 (Enforcement-Penalty) of the El Paso City Code.	1	2.16.050 J.4.
18026	6- 4-2013	An Ordinance amending Title 18 (Building and Construction), Chapter 18.46 (Landscape) of the El Paso City Code, by repealing Chapter 18.46 (Landscape) in its entirety and adopting a new Chapter 18.46 (Landscape) in its place, the penalty being as provided in Section 18.46.320 (Violations-Penalty) of the El Paso City Code.	1 Rpld	18.46.010—18.46.140,
				18.46.200, 18.46.210,
				18.46.300—18.46.340
			Added	18.46.010—18.46.140,
				18.46.200, 18.46.210,
				18.46.300—18.46.330
18027	6- 4-2013	An Ordinance granting a Special Privilege License to Magellan Pipeline Company, L.P., for the construction, installation, use and repair of two subsurface, eight-inch refined product pipelines beneath portions of City rights-of-way on Mesquite Miel Drive between Sachel Cliff Drive and Brick Dust Drive and Railroad Drive between Angora Loop Drive and Ashley Road for a term of fifteen years with two renewable fifteen year terms. (NESV12-00024 and NESV12-00025)		Omitted
18028	6- 4-2013	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.030 (Schedule III - Parking Prohibited At All Times On Certain Streets), of the El Paso City Code, to delete Grama Street and San Antonio Avenue, the penalty being as provided in Section 12.84.010 and Chapter 12.85 of the El Paso City Code.	1 Rpld	12.88.030 338.
			Rpld	12.88.030 340.
18029	6-18-2013	An Ordinance Amending Ordinance No. 017880 for the purpose of approving the First Amendment to the Ballpark Lease Agreement by and among the City of El Paso, Texas, Mountain Star Sports Group, LLC - El Paso Baseball Club Series, and Mountain Star Sports Group, LLC.		Omitted
18030	7- 2-2013	An Ordinance authorizing the issuance of "City of El Paso, Texas, General Obligation Refunding Bonds, Series 2013" in an amount not to exceed $27 million for debt service savings to the City.		Omitted
18031	7- 2-2013	An Ordinance Establishing Deadlines and Procedures For Placing Matters on the Agenda For City Council Meetings and Repealing Ordinance No. 017616.		Omitted
18032	7- 2-2013	An Ordinance granting Special Permit No. PZST13-00004, to allow for infill development with reduced rear setbacks on the property described as a portion of Block B, Britton Davis Addition, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Property owner: Daniel Enriquez, Location: 8424 Dyer Street PZST13-00004.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18033	7- 2-2013	An Ordinance granting Special Permit No. PZST13-00005, to allow for infill development with reduced lot area, and lot width on the property described as Lots 4, 5, & 6, Block 1, Los Escondidos Subdivision, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Property owner: Juan and Ana Ramirez, Location: 7916, 8000 and 8004 Mitzie Ram Place, PZST13-00005.		Omitted
18034	7- 2-2013	An Ordinance changing the zoning of a portion of Lot 3, Block 5, Castner Range Subdivision No. 1, City of El Paso, El Paso County, Texas from C-1 (Commercial) to C- 3 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Property owner: Investment Builders Inc.: Location: 9301 Dyer Street, PZRZ13-00006.		Omitted
18035	7- 2-2013	An Ordinance changing the zoning of Lot 9 and 10, Block 3, Alameda Acres, City of El Paso, El Paso County, Texas from A-2/sp (Apartment/special permit) and R-4 (Residential) to R-MU (Residential-Mixed Use) and approving a Master Zoning Plan. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Property Owner: 125 Glenwood LLC, Location; 125-127 Glenwood Street. PZRZ13-00021.		Omitted
18036	7- 2-2013	An Ordinance granting Special Permit No. PZST13-00009, to allow for infill development with reduced front, and rear setbacks on the property described as Lots 6 and 7, Block 4, Emerald Valley Estates Replat A, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Property owner: Winton and Associates, Location: 5524-5528 Woodgreen Drive, PZST13-00009.		Omitted
18037	7- 2-2013	An Ordinance releasing a condition placed on property by Ordinance No. 014240 which changed the zoning of the south 1/3 of Lots 16-20, Block 67, Harts Survey No. 9 of Satterwaite Addition, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Property owner: Revery Investments, LLC, Location: 1000 N. Mesa Street, PZCR13-00002.		Omitted
18038	7- 2-2013	An Ordinance changing the zoning of a Portion of Tracts 12 and 13, J.M. Jett Survey 155, City of El Paso, El Paso County, Texas from R-5 (Residential) to C-3 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 4864 Doniphan Drive. Property Owner: El Paso Independent School District. PZRZ13-00003		Omitted
18039	7- 2-2013	An Ordinance amending the 2025 Proposed Thoroughfare System, as incorporated into Plan El Paso, to add River Bend Drive as a collector arterial from Frontera Road to Sunset Drive, to delete a portion of Mills Avenue from Oregon Street to San Francisco Street currently designated as a minor arterial and to delete a portion of El Paso Street from San Francisco Street to the northerly intersection with San Antonio Avenue currently designated as a minor arterial.		Omitted
18040	7-16-2013	An Ordinance amending Ordinance No. 014826 and No. 015961 to approve the use of Subzone Operator Agreements for Foreign Trade Zone No. 68 and to authorize the City Manager or designee to execute these types of agreements on behalf of the City of El Paso.		Omitted
18041	7-16-2013	An Ordinance amending Ordinance No. 17924 amending Title 5 (Business License and Permit Regulations) of the El Paso City Code to add Chapter 5.17 (Credit Access Businesses) in order to set forth registration requirements and credit extension guidelines, to amend the effective date of Ordinance No. 17924.	1	5.17.010—5.17.130

Ordinance Number	Approval Date	Description	Section	Section this Code
18042	7-16-2013	An Ordinance changing the zoning of Lot 3 and the east half of Lot 2, Block 59, East El Paso Addition, City of El Paso, El Paso County, Texas from R-5 (Residential) to A-O (Apartment/Office). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 3405 Gateway West Boulevard. Property Owner: Richard Brent Aziz. PZRZ13-00010		Omitted
18043	7-16-2013	An Ordinance amending Title 20 (Zoning), Chapter 20.18 (Sign Regulations), Article IV (On-Premise Sign Regulations) of the El Paso City Code to amend sign standards for wall signs and establish standards for perpendicular signs in the C-5 and Union Plaza (U-P) zoning districts. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.	1	20.18.460 E.4.
			2	20.18.470 D.4
			3 Added	20.18.470 E.
18044	7-30-2013	An Ordinance changing the zoning of Lots 26 & 27, Block C, Stevens, City of El Paso, El Paso County, Texas from C-4 (Commercial) to C-5 (Commercial), and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 533 W. Franklin. Property Owner: 533 West Franklin, LLC. PZRZ13-00018		Omitted
18045	7-30-2013	An Ordinance changing the zoning of a Portion of Lot 8, Block 6, Hueco View Acres, City of El Paso, El Paso County, Texas from R-3 (Residential) to G-MU (General Mixed Use) and approving a Master Zoning Plan. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: South of Edgemere Boulevard and West of Lee Boulevard. Property Owner: Ardent Quest Apartment. PZRZ13-00014		Omitted
18046	7-30-2013	An Ordinance changing the zoning of a Lot 48, Block 4, Stiles Gardens, City of El Paso, County of El Paso, Texas, from R-5 (Residential) to S-D (Special Development). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 7121 Stiles Drive A & B. Property Owner: Clotilde Hidalgo. PZRZ13-00008		Omitted
18047	7-30-2013	An Ordinance changing the zoning of Tract 20-B1, Block 55, Ysleta Grant, City of El Paso, El Paso County, Texas from R-F (Ranch-Farm) to C-4 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 9355 Escobar Drive. Property Owner: D.M.K. Sisters, LLC. PZRZ13-00011		Omitted
18048	7-30-2013	An Ordinance granting Special Permit No. PZST12-00023, to allow for a Facility-Mounted Personal Wireless Service Facility (PWSF) and imposing a condition on the property described as Lot 19 and a portion of Lot 17, Block 138, Chaparral Park Unit 30, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.455 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 6520 Loma De Cristo Drive. Applicant: Ascension Lutheran Church. PZST12-00023		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18049	7-30-2013	An Ordinance amending Ordinance No. 016528 to modify the boundaries of Tax Increment Reinvestment Zone Number 5, City of El Paso, Texas to include an additional area in Downtown El Paso: Addition C Area- South El Paso, as more fully described herein; and adopting amendments to the Final Project Plan and Final Reinvestment Zone Financing Plan for Tax Increment Reinvestment Zone Number 5 to incorporate the increase to the fund resulting from the expansion to the boundary, and to allocate additional funding from the financing plan to the Commercial Facade Improvement Program and Tax Increment Reinvestment Zone Administrative Costs; adopting said amendments as required by Section 311.011(E) Texas Tax Code; also providing a severability clause.		Omitted
18050	8- 6-2013	An Ordinance changing the zoning of a portion of Section 16, Block 79, Township 3, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas from R-3 (Residential) to R-3A (Residential). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: South of Vista Del Sol Drive and west of City Limit. Property Owner: Americas Loop 375 Joint Venture. PZRZ13-00002		Omitted
18051	8- 6-2013	An Ordinance granting Special Permit No. PZST13-00015, to allow for infill development with reduced lot width and side yard setback on the property described as a portion of Lot 1, Block 2, Town and Country Village 2nd Revised Map, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 5135 Chromite Street. Property Owner: E. Peinado Development Co. PZST13-00015		Omitted
18052	8- 6-2013	An Ordinance vacating a portion of Elm Street Right-of-Way, adjacent to Block 126, Highland Park Addition, City of El Paso, El Paso County, Texas. Subject Property: 2801 Memphis Avenue. Property Owner: Ramon and Aurora Tarin. SURW13-00001		Omitted
18053	8- 6-2013	An Ordinance vacating a portion of Elm Street Right-of-Way, adjacent to Block 126, Highland Park Addition, City of El Paso, El Paso County, Texas. Subject Property: 2800 Nashville Street. Property Owner: Carlos and Maria Hernandez. SURW13-00002		Omitted
18054	8- 6-2013	An Ordinance vacating a portion of Elm Street Right-of-Way, adjacent to Block 126, Highland Park Addition, City of El Paso, El Paso County, Texas. Subject Property: 2604 Elm Street. Property Owner: Blanca V. Duarte. SURW13-00005		Omitted
18055	8- 6-2013	An Ordinance vacating a portion of Elm Street Right-of-Way, adjacent to Block 126, Highland Park Addition, City of El Paso, El Paso County, Texas. Subject Property: 2608 Elm Street. Property Owner: Salvador and Blanca V. Duarte. SURW13-00006		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18056	8- 6-2013	An Ordinance amending Title 19 (Subdivisions), Chapter 19.01 (Provisions Applicable To All Platting Procedures), to modify and add exemptions, and amend the time for decision on Plats and Land Studies; Chapter 19.02 (Land Studies), to amend the criteria for approval and criteria for revisions following approval of a Land Study; Chapter 19.03 (Preliminary Plat), to amend the effect of approval of a Preliminary Plat, and the time for expiration and extension of the Preliminary Plat; Chapter 19.04 (Final Plat), to amend the time for expiration and extension of a Final Plat, and the plat recordation procedure; Chapter 19.08 (Construction Plans and Management), to amend the requirements of Subdivision Improvement Plans, the timing of public improvements and permit issuance to allow grading permits without requiring a subdivision, and to amend the security for completion of improvements; Chapter 19.10 (Dedication, Construction Requirements and City Participation), to clarify Roadway Participation Policies and developer's proportionate share; Chapter 19.15 (Roadways), to amend the street/thoroughfare escrow policies and procedures; Chapter 19.21 (Sidewalks), to amend sidewalk requirements for new streets; Chapter 19.41 (Expiration, Extension and Reinstatement), to amend the time of expiration of a plat application; and Chapter 19.46 (Proportionality Appeal), to amend the appeal requirements. The penalty being as provided in Chapter 19.42 of the City of El Paso City Code.	1	19.01.030
			2	19.01.040 A.
			3	19.02.040 A.
			4	19.02.070 A., B.
			5	19.03.050 B.
			6	19.03.060
			7	19.04.060
			8	19.04.070 A.
			9	19.08.010 B.
			10	19.08.020 B.
				19.08.020 D.
			11	19.08.040 A.
			12	19.10.050
			13	19.15.030 B.
			14	19.21.030 B.
			15	19.41.010 A.
			16	19.46.030 C., D.
18057	8- 6-2013	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.180 (No Stopping Or Standing - Tow Away Zone), of the El Paso City Code to delete an obsolete provision and provide more parking on Campbell Street, the penalty being as provided in Section 12.84.010 of the El Paso City Code.	1 Rpld	12.88.180 18.
			2	12.88.180 19., 20.
18058	8- 6-2013	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.150 (Schedule XIV - Speed Limits) Paragraph F (Thirty-Five Miles Per Hours and Paragraph G (Forty Miles per Hour), of the El Paso City Code, to add new locations, the penalty being as provided in Chapter 1.08 (General Penalty) of the El Paso City Code.	1 Added	12.88.150 F.98., 99.
			Added	12.88.150 G.46.

Ordinance Number	Approval Date	Description	Section	Section this Code
18059	8- 6-2013	An Ordinance rescinding Ordinance Nos. 10739, 12141, 15006, and 15167 and authorizing the El Paso Public Library to establish fees by the Budget Resolution for use of library system for non-residents of the City of El Paso; replacement fees for lost or destroyed cards; fees for overdue, damaged, or lost books and other materials; fees for services including but not limited to copying, printing, faxing, scanning, and meeting room use; and collection fees. The ordinance also authorizes City Council to declare limited periods of "Amnesty" by appropriately adopted Resolution.		Omitted
18060	8-20-2013	An Ordinance changing the zoning of a portion of Lot 2, Block 9, Canutillo Industrial Park, City of El Paso, El Paso County, Texas from R-3 (Residential) to C-3 (Commercial), and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Property owner: Abram Wiebe Dyck and Aganetha Fehr Hildebrand, Location: south of Desert Boulevard and north of Los Mochis Drive, PZRZ11-00043		Omitted
18061	8-20-2013	An Ordinance changing the zoning of Tracts 7 and 7A, Section 16, Block 80, Township 1 Texas and Pacific Railway Surveys, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) to R-5 (Residential). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Property owner: Direct Home Sales Inc., Location: south of Patriot Freeway and east of Mesquite Hill Drive, PZRZ13-00019.		Omitted
18062	8-20-2013	An Ordinance granting Special Permit No. PZST13-00010, to allow for a Ground Mounted 55' Personal Wireless Service Facility on the property described as Lots 11-12, Block 34, Campbell's Addition, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.455 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 1100 S. Oregon Street. Property Owner: Silva Diversified, Inc. PZST13-00010		Omitted
18063	8-20-2013	An Ordinance granting Special Permit No. PZST12-00026, to allow for the expansion of a major utility facility for El Paso Electric Company and imposing conditions on the property described as a portion of Block 7, Celina Plaza, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.730 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 1165 Sunmount Drive. Applicant: El Paso Public Service Board (PSB). PZST12-00026		Omitted
18064	8-20-2013	An Ordinance amending Ordinance Number 017862 which established operating procedures and set fees for Foreign-Trade Zone No. 68 and to allow the revisions to Zone Schedule No. 1, Rates, Rules, Charges and Regulations applying at Foreign Trade Zone No. 68, El Paso, Texas, to replace in its entirety Article One, formerly known as "Privileges Of Foreign Trade Zones" with a new Section called "Scope of Foreign Trade Zones"; to make other changes to be consistent when referring to defined terms throughout the Tariff Schedule; to remove Article II for redundancy; to update Section 3.01 regarding merchandise permitted in a zone; to update Section 3.07 regarding exclusion from Zone of Goods or Process Of Treatment; to update the names of required federal forms; to update the admission language in Section 4.17 to allow for blanket admissions; to amend Section 4.27 to require compliance with special orders of the Foreign-Trade Zones Board; to add Section 4.37 regarding grantee liability; to add a fee for alterations to a zone site and to change certain fees in Article V; to add language to amend certain definitions and to add other definitions; and to add Appendices D and E.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18065	8-20-2013	An Ordinance amending Title 1 (General Provisions), Chapter 1.04 (General Provisions), Section 1.04.070 (Vesting of Projects), of the El Paso City Code, to authorize a fee for vesting Application Permits, the penalty being as provided in Section 1.08 (General Penalty) of the El Paso City Code.	1	1.04.070 B.
18066	8-20-2013	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.56 (Parking Meters), Section 12.56.020F (Installation) to establish the days and times when parking meter fees shall apply, to allow the Director of the Department of Transportation to recommend exceptions and to add exceptions; the penalty being as provided in Section 12.84.010 of the El Paso City Code.	1	12.56.020 F.
18067	8-20-2013	An Ordinance amending Title 2 (Administration And Personnel), to amend Chapter 2.110 (City Organizational Structure) of the City Code to create and establish the duties of the Chief Financial Officer; to create and establish the duties of the Purchasing and Strategic Sourcing Department and the Office of the Comptroller.	1 Added	2.110.060
			2 Added	2.110.070
			3 Added	2.110.080
18068	8-20-2013	An Ordinance amending Title 13 (Streets, Sidewalks And Public Places), Chapter 13.25 (El Paso Zoo), Section 13.25.010 (El Paso Zoo Fees) of the El Paso City Code to update the fees authorized to be charged by the City through the El Paso Zoo, which will be set by the City's Budget Resolution or other duly authorized Resolution.	1	13.25.010
18069	8-20-2013	An Ordinance levying FY 2014 taxes.		Omitted
18070	8-20-2013	An Ordinance amending Ordinance No. 016605 which originally authorized the issuance of El Paso Public Improvement District No. 1 (Thunder Canyon) Special Assessment Revenues Bonds, Series 2007, to allow a modification in the method by which debt service coverage is calculated.		Omitted
18071	9-17-2013	An Ordinance changing the zoning of Tract 1-D-1, Block 2, Ascarate Grant, City of El Paso, El Paso County, Texas from R-3 (Residential) to C-1 (Commercial), and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: North of Album and East of McRae. Property Owner: LUCMOR, LLC. PZRZ13-00017 Owner Information: LUCMOR, LLC, 1400 Texas Avenue, El Paso, TX 79901		Omitted
18072	9-17-2013	An Ordinance changing the zoning of a portion of Section 47, Block 79, Township 2, Texas and Pacific Railway Company Surveys, 14400 Pebble Hills Blvd., City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) to S-D (Special Development) and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 14400 Pebble Hills Boulevard. Property Owner: Socorro Independent School District. PZRZ13-00025		Omitted
18073	9-17-2013	An Ordinance approving a detailed site development plan for a portion of Section 47, Block 79, Township 2, Texas and Pacific Railway Company Surveys; located at 14400 Pebble Hills Boulevard, and to permit an increase in height from the height limit regulations of the S-D (Special Development) zone district, City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.360 A.5. the penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 14400 Pebble Hills Boulevard. Property Owner: Socorro Independent School District. PZDS13-00010		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18074	9-17-2013	An Ordinance granting Special Permit No. PZST13-00013, to permit a skilled nursing facility on the property described as a portion of Tract 2A, Block 1, Ysleta Grant, 9641 North Loop Road, City of El Paso, El Paso County, Texas, Pursuant to Section 20.04.320 of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 9641 North Loop Road. Property Owner: Ben L. Ivey, LTD. PZST13-00013		Omitted
18075	9-17-2013	An Ordinance amending Ordinance 8064 (Classification and Compensation Plan), to amend the Ordinance to comport with the recent amendments to the Charter of the City of El Paso, Texas, and to make other non-substantive revisions to various sections of the Ordinance.		Omitted
18076	9-17-2013	An Ordinance amending Ordinance 8065 (Civil Service Rules and Regulations), to amend various sections of Rule Nos. 2, 4, 5, 6, 8 and 10 to comport with the recent amendments to the Charter of the City of El Paso, Texas; to delete Rule No. 3 and mark as "RESERVED;" to amend Rule No. 6 to correspond with City personnel policies; and to correct a scrivener's error in Rule No. 2.		Omitted
18077	9-17-2013	An Ordinance authorizing the City Manager to execute a Quitclaim (Tax Resale) Deed conveying all right, title and interest in real properties described as part of Tract 2-A, Block 6, Ascarate Grant, and known as Tract 2-V-1-F, an addition to the City of El Paso, El Paso County, Texas, as further described in Volume 926, Page 1635, deed records, El Paso County, Texas to Marcelino Arriaga, in accordance with Section 34.05 (h) of the Tax Code.		Omitted
18078	10- 1-2013	An Ordinance authorizing the issuance of "City of El Paso, Texas, Combination Tax and Revenue Certificates of Obligation, Series 2013" in an amount not to exceed $68,500,000.		Omitted
18079	10- 1-2013	An Ordinance changing the zoning of a portion of south ½ of Block 61, Cotton Addition, 1519 Myrtle, City of El Paso, El Paso County, Texas from M-1 (Manufacturing) to C-3 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 1519 Myrtle. Property Owner: Javier O. Ramos. PZRZ13-00020		Omitted
18080	10- 1-2013	An Ordinance granting Special Permit No. PZST13-00012, to allow for Infill Development with a 100 percent parking reduction, as well as a special permit for a ballroom in the C-3 (Commercial) zoning district, on the property described as a portion of south ½ of Block 61, Cotton Addition, 1519 Myrtle, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development and Section 20.04.320 of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 1519 Myrtle. Property Owner: Javier O. Ramos. PZST13-00012		Omitted
18081	10- 1-2013	An Ordinance granting Special Permit No. PZST13-00014, to allow for Infill Development with reduced side and cumulative setbacks and reduced lot area and depth and imposing a condition on the property described as Lots 1 & 2, Block 42, Morningside Heights, 4103 Lackland, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 4103 Lackland. Property Owner: Elguea Properties, LLC. PZST13-00014		Omitted
18082	10- 1-2013	An Ordinance vacating a portion of 9.5' alley adjacent to Lots 29 and 30, Block 1, Map of Orchard Addition, City of El Paso, El Paso County, Texas. SURW12-00006 Applicant information: Daniel Lujan		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18083	10-15-2013	An Ordinance authorizing the issuance of "City of El Paso, Texas, General Obligation Pension Refunding Bonds, Taxable Series 2013"; levying a continuing direct annual ad valorem tax for the payment of said Bonds; and resolving other matters which are necessary to effectuate said issuance, including the delegation of matters relating to the sale and issuance of the Bonds to an authorized City official within certain specific parameters.		Omitted
18084	10-15-2013	An Ordinance approving an amendment to a Detailed Site Development Plan on planned residential development Special Permit No. SU-00005 approved June 27, 2000, to reduce side and cumulative (side and side street) setbacks for Lot 11, Block 1, Montoya Oaks Estates, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.150 and 20.10.470. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Property owner: Adriana Elena Del Valle Garcia, Location: 700 Montoya Oak Lane, PZDS13-00015.		Omitted
18085	10-15-2013	An Ordinance changing the zoning of a portion of Lot 27, Lots 28 to 32, Block 54, Bassett Addition, and all of Blocks 55 & 56 and CLSD Streets BTW, 2201 Mills, City of El Paso, El Paso County, Texas, from M-1 (Manufacturing) to C-4 (Commercial), and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 2201 Mills. Property Owner: E.P.I.L.D., Inc. PZRZ13-00016		Omitted
18086	10-15-2013	An Ordinance granting Special Permit No. PZST13-00011, to allow for Infill Development with an 83 percent parking reduction in the C-4 (Commercial) zoning district, on the property described as a portion of Lot 27, Lots 28 to 32, Block 54, Bassett Addition, and All of Blocks 55 & 56 and CLSD Streets BTW, 2201 Mills, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject property: 2201 Mills. Property Owner: E.P.I.L.D., Inc. PZST13-00011		Omitted
18087	10-15-2013	An Ordinance releasing a condition placed on property by Ordinance No. 4795 which changed the zoning of All of Tract 4H1D and 4H1E, A.F. Miller Survey No. 215, City of El Paso, El Paso County, Texas and imposing condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: South of Mesa Street and East of Confetti Drive. Property Owner: Dareen Kenda Homes, LLC. PZCR13-00006		Omitted
18088	10-15-2013	An Ordinance granting Special Permit No. PZST13-00017, to allow for Infill Development with reduced lot width on the property described as a portion of Tract "C" of the Country Club Place Southside, City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 918 & 920 W. Sunset Road. Property Owner: VIA Mirada I, L.P. PZST13-00017		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18089	10-29-2013	An Ordinance amending Title 2, Chapter 2.64 of the El Paso City Code (City Employees' Pension Fund) to clarify that the Pension Plan is exclusive to City Employees; to reflect a compensation ceiling for calculating contribution or benefit accruals; to reflect that vested benefits and employee contributions are nonforfeitable should the plan terminate; to define compensation and gross compensation; to clarify that an employee shall not forfeit any contributions should they leave service before reaching retirement age; to reflect a limit on plan benefits paid out in accordance with the Internal Revenue Code; to allow beneficiaries to have any portion of an eligible distribution paid directly to an eligible plan; to replace the terms "earnings" and "gross earnings" with "compensation" and "gross compensation"; to allow non-spousal beneficiaries to make direct rollovers; and to replace the term "permanent part-time" with "regular part-time".	1	2.64.010
			2 Added	2.64.190 D.
			3 Added	2.64.190 E.
			4 Added	2.64.190 F.
			5	2.64.220 A.
			6 Added	2.64.200 G.
			7	2.64.200 B.1.—4.
				2.64.205 A.3.
			8 Added	2.64.220 I.
			9	2.64.120 B.
				2.64.140
				2.64.200 F.
18090	10-29-2013	An Ordinance amending Title 18 (Building and Construction), Chapter 18.02 (Building and Construction Administrative Code), Section 18.02.106 (Permit Fees), Subsection 18.02.106.28 (Starting work without a permit, of the El Paso City Code, to increase the amount of the permit fee for starting work without a permit on commercial property, to establish a permit fee for contractors starting work on residential property without a permit and to establish a permit fee for homeowners starting work on their own residential property without a permit, the Penalty being as provided in Section 18.02.107 (Violations and Penalties) of the El Paso City Code.	1	18.02.106.28
			2 Added	18.02.106.29
			3 Added	18.02.106.30
18091	11- 5-2013	An ordinance granting Special Permit No. PZST13——21, to allow for a television broadcasting antennae and equipment facility on the property described as a portion of Lot 2, Block 3, Alto Mesa Unit 3, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.700 and 20.04.320 of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
18092	11- 5-2013	An ordinance authorizing the city manager to sign a contract of sale and any other necessary documents between the City of El Paso and the El Paso Collaborative for Community and Economic Development which will allow the city to convey Lot 60, Block 33, Tierra Del Este #6; and Lot 32, Block 32, Vista Real #3, in the City of El Paso, El Paso County, Texas (also known as 3081 Tierra Salada; and 3525 Oxcart Run), to the El Paso Collaborative for Community and Economic Development.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18093	11- 5-2013	An ordinance authorizing the city manager to execute a quitclaim (tax resale) deed conveying all right, title and interest in real property described as Lot 18, Block D, Deal Addition, an addition to the City of El Paso, El Paso County, Texas, according to the map or plat thereof, recorded in Volume 9, Page 4, Map Records of El Paso County, Texas to martin Arrieta and Ana Luisa Arrieta, in accordance with Section 34.05 (h) of the Tax Code.		Omitted
18094	11-19-2013	An ordinance granting a license to United States General Services Administration (licensee) for construction and operation of security enhancements and temporary structures on a portion of city right of way located on city-owned bridge property and on South Zaragoza Road between Loop 375 and abutting the Ysleta Land Port of Entry (Ysleta Lpoe) that are necessary to support the Department of Homeland Security, Customs and Border Protection's (DHS-CBP) inspection of outbound vehicular traffic, at no cost to the city.		Omitted
18095	10-21-2013	An ordinance granting Special Permit No. PZST13-00020, to permit an expansion of an assisted living facility on the property described as Lots 17 through 20, Block 76, Supplemental Map No. 1 of East El Paso, 3330 E. Yandell Drive, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.320 of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject property: 3330 E. Yandell Drive. Property owner: Oscar and Rosemary Melendez. PZST13-00020.		Omitted
18096	11-19-2013	An ordinance vacating a utility easement described as a portion of Tract 1-F, (said portion of Tract 1-F, now known as all of Tract 1-F-6) Block 1, Ascarate Grant, and being a portion of Lot 1, Block 1, Desierto Loma Subdivision, City of El Paso, El Paso County, Texas. SUET13-00001		Omitted
18097	11-19-2013	An ordinance changing the zoning of Lot 12, Block 21, Map #2 of French Addition, 4301 E. Missouri, City of El Paso, El Paso County, Texas from R-5 (residential) to C-1 (commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject property: 4301 E. Missouri. Property owner: Armando & Irma Araiza. PZRZ13-00022		Omitted
18098	11-19-2013	An ordinance granting Special Permit No. PZST13-00016, to allow for infill development with reduced rear, side, and side street setbacks, as well as a 60 percent parking reduction, on the property described as Lots 12 to 16, Block 21, Map #2 of French Addition, 4301 E. Missouri, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 infill development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject property: 4301 E. Missouri. Property owner: Armando & Irma Araiza. PZST13-00016		Omitted
18099	12- 3-2013	An ordinance amending Title 12 (Vehicles and Traffic) of the El Paso City Code by adding a new chapter, 12.77 (Golf Carts for Holiday Parcel Delivery) authorizing the limited operation of golf carts on public streets during the winter holiday season and providing for a penalty as provided in Section 12.77.040 (Offense) of the El Paso City Code.	1 Added	Ch. 12.77, 12.77.010—12.77.040
18100	12-17-2013	An ordinance granting to Oneok, Inc., an Oklahoma Corporation, permission and authority to assign and transfer to Onegas, Inc., an Oklahoma Corporation, its rights and obligations under Ordinance No. 15316, by which Oneok, Inc. assumed the right and obligations granted to Southern Union Company under Ordinance No. 014360 as amended by Ordinance No. 014496 which granted certain non-exclusive powers, licenses, rights-of-way, privileges and franchise to construct, operate and maintain in the City of El Paso, Texas a natural gas distribution system.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18101	12-17-2013	An ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.180 (No stopping or standing—Tow away zone), paragraph A. (No Parking or Standing, Tow-Away Zone), of the El Paso City Code, to add a new location in the alley between Stanton Street and Kansas Street, the penalty being as provided in Section 12.84.010 of the El Paso City Code.	1 Added	12.88.010 A.112.
18102	12-17-2013			Omitted
18103	12-17-2013			Omitted
18104	12-17-2013	An ordinance amending Title 20 (Zoning) of the El Paso City Code, by amending Chapter 20.02 General Provisions and Definitions to delete the definition of school and add elementary and seconday schools, Chapter 20.08 (Appendix A), Table of permissible uses, by designating that a detailed site plan shall be required for community recreational facility, library, museum, and school—elementary; amending Chapter 20.10, Supplemental Use Regulations, by adding a new Section 20.10.145, Civic buildings, public spaces, and educational facilities; and providing for a penalty as provided in Chapter 20.24 of the Code.	1	20.02.840
			Added	20.02.841
			2	Tit. 20, App. A, 3.19, 3.20
			3	Tit. 20, App. A, 3.10, 3.13, 3.16, 3.19
18105	12-17-2013	An ordinance amending Title 20 (Zoning), Chapter 20.04 (Administrative Provisions); Article VII (Public Hearings); Section 20.04.520 (Notice) of the El Paso City Code to require that notice of proposed changes in zoning classification be provided to property owners and to multifamily dwellings and that notice be posted on the site of proposed zoning change. The penalty is as provided for in Chapter 20.04 of the El Paso City Code.	1	20.04.520
18106	12-17-2013	An ordinance amending Title 18 (Building and Construction), Chapter 18.08 (Building Code), Section 18.08.070 (Fences), of the El Paso City Code, to allow electrified fences adjacent to residential zones provided certain conditions are met, the penalty being as provided in Section 18.02.111 (Violations and penalties) of the El Paso City Code.	1	18.08.070
18107	12-17-2013	An ordinance vacating a portion of campbell Street Right-of-Way, adjacent to Lot 16 and the north 4.0 feet of Lot 17, Block 273, Campbell's Addition, City of El Paso, El Paso, County, Texas. Subject property: 1012 N. Campbell Street. Property owner: RAL investments, LLC. SURW13-00008.		Omitted
18108	12-17-2013	An ordinance vacating a portion of Campbell Street Right-of-Way, adjacent to Lots 11, 12 and 13, Block 273, Campbell's Addition, City of El Paso, El Paso County, Texas. Subject property: 1020 N. Campbell Street. Property owner: La Posada Home, Inc. SURW13-00009(1).		Omitted
18109	12-17-2013	An ordinance vacating a portion of Campbell Street Right-of-Way, adjacent to Lots 14 and 15, Block 273, Campbell's Addition, City of El Paso, El Paso County, Texas. Subject property: 1014 N. Campbell Street. Property owner: La Posada Home, Inc. SURW13-00009(2).		Omitted
18110	12-17-2013	An ordinance vacating a portion of Campbell Street Right-of-Way, adjacent to the south 22 feet of Lot 17 and all of Lots 18, 19 and 20, Block 273, Campbell's Addition, City of El Paso, El Paso County, Texas. Property owner: Torreon Properties Incorporated. SURW13-00010.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18111	12-17-2013	An ordinance vacating a portion of the North Gate Outlet Channel Right-of-Way out of Castner Heights Unit One, City of El Paso, El Paso County, Texas and authorizing the city manager to sign a deed without warranty to convey a 1.24 acre parcel, more or less, being a portion of the vacated drainage right-of-way to Joseph C. Weissmiller and Iris L. Roland or their successors or assigns. SURW12-00018		Omitted
18112	12-17-2013	An ordinance granting a special privilege license to Mills Plaza Parking, LP for the use of portions of city right-of-way along Oregon Street adjacent to the property located at 303 N. Oregon to place one "A" frame informational sign, one portable valet parking podium, and for a vehicle drop off and pick up zone for valet parking for a term of one year with two one-year options to renew. (NESV12-00022)		Omitted
18113	12-17-2013	An ordinance granting Special Permit No. PZST13-00008, to allow for infill development with a 50 percent parking reduction on the property described as Tract 4-C, Section 11, Block 81, Township 2, Texas and Pacific Railway Company surveys, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject property: 5000 Riley. Property owner: RNR Properties. PZST13-00008		Omitted
18114	1- 2-2014	An Ordinance changing the zoning of a portion of Tracts 5 and 6, Milagro Acres, 5332 Marcillus Avenue, City of El Paso, El Paso County, Texas from C-1 (Commercial) to R-4 (Residential). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 5332 Marcillus Avenue. Property Owner: Olga R. Sanchez. PZRZ13-00031		Omitted
18115	1- 2-2014	An Ordinance changing the zoning of Tract 4, Block 15, Ysleta Grant, 610 Lomaland Drive, City of El Paso, El Paso County, Texas from R-3 (Residential) to R-F (Ranch and Farm). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 610 Lomaland Drive. Property Owner: David and Debbie Chavez. PZRZ13-00034		Omitted
18116	1- 2-2014	An Ordinance amending conditions placed on the property by Ordinance No. 5029 which changed the zoning of a Portion of Tract 4A, N/KIA Tract 4A5, Block 12, Ysleta Grant, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 8250 North Loop. Property Owner: OPM Capital Management. PZCR13-00008		Omitted
18117	1- 2-2014	An Ordinance granting Special Permit No. PZST13-00023 to allow for infill development with a reduced rear setback on the property described as a Portion of Tract 4A, N/KIA Tract 4A5, Block 12, Ysleta Grant, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 lnfill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 8250 North Loop. Property Owner: OPM Capital Management. PZST13-00023		Omitted
18118	1- 7-2014	An Ordinance authorizing the issuance of "City of El Paso, Texas, Water and Sewer Revenue Refunding Bonds, Series 2014," and resolving matters which are necessary to effectuate said issuance, including a delegation of authority.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18119	2- 4-2014	An Ordinance changing the zoning of Lots 1 to 22 and 24 to 27, Block 1, Boulder Canyon Subdivision, City of El Paso, El Paso County, Texas from PR-1/c (Planned Residential 1/Condition) to PR-II (Planned Residential 2); and releasing all conditions placed on the subject property by Ordinance No. 16586 which changed the zoning of Lots 1 to 22 and 24 to 27, Block 1, Boulder Canyon Subdivision. The penalty is as provided in Chapter 20.24 of the El Paso City Code. Subject Property: East of Westwind and North of Belvidere. Property Owner: DVEP Land, LLC. PZRZ13-00007 & PZCR13-00007		Omitted
18120	2- 4-2014	An Ordinance approving a detailed site development plan for Lots 1 to 22 and 24 to 27, Block 1, Boulder Canyon Subdivision, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.150. The penalty is as provided in Chapter 20.24 of the El Paso City Code. Subject Property: East of Westwind and North of Belvidere. Property Owner: DVEP Land, LLC. PZDS13-00025		Omitted
18121	2- 4-2014	An Ordinance changing the zoning of a portion of Tract 2, Boothville Subdivision, 8631 North Loop Drive, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) to C-1 (Commercial) and imposing condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 8631 North Loop Drive. Property Owner: WestStar Bank, Independent Executor of the Estate of Edward Abraham, Deceased. PZRZ13-00042		Omitted
18122	2- 4-2014	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.56 (Parking Meters), Section 12.56.020F (Installation) to add an Exception from Parking Meter Fees for One Hour near City Hall and the One-Stop-Shop; the penalty being as provided in Section 12.84.010 of the El Paso City Code	1 Added	12.56.020 F.5., 6.
18123	2- 4-2014	An Ordinance amending Ordinance No. 017603, Title 9 (Health and Safety), Chapter 9.04 (Solid Waste Management) to delete the flow control requirement throughout the Chapter and to delete the hauler's franchise fee in Section 9.04.410B.3 (Hauler Permit Application, Issuance, and Appeal Procedures) and Section 9.04.530E (Fees General); the penalty being as provided in Section 9.04.630 of the El Paso City Code.	1 Rnbd	9.04.020 15.
			as	9.04.020 2.
			Rnbd	9.04.020 22.
			as	9.04.020 23.
			Rnbd	9.04.020 28.
			as	9.04.020 29.
			Rpld	9.04.020 15., 22., 28., 48.
			2	9.04.080
			3	9.04.180
			4	9.04.260 A.
			5	9.04.280 B.
			6	9.04.290
			7	9.04.390
			8	9.04.410 B.3.
			9	9.04.420 B.4.
			Rpld	9.04.420 D.
			10	9.04.440 A.
			11	9.04.450
			12	9.04.490
			13	9.04.500 B.
			14	Ch. 9.04, Art. VIII(tit.)
			Rpld	9.04.520

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			15 Rpld	9.04.530 E.
			16	Ch. 9.04, Art. VII(note)
18124	2- 4-2014	An Ordinance authorizing the City Manager to sign a contract of sale and any other necessary documents between the City Of El Paso and P.V. Community Development Corporation which will allow the City to convey Lots 27, 28, 29, 30, 31 And 32, Block P-2, Garden Subdivision, an addition to the City Of El Paso, El Paso County, Texas, according to the plat thereof on file in Volume 11, Page 39, Real Property Records, El Paso County, Texas, also known as 600 South Piedras, El Paso, Texas, City Of El Paso, El Paso County, Texas to P.V. Community Development Corporation.		Omitted
18125	2-18-2014	An Ordinance annexing the following real property described as a portion of Section 48, Block 79, & portion of Sections 18 & 19, Block 78, Township 2, Texas and Pacific Railway Co. Surveys, El Paso County, Texas. Subject Property: South of the future extension of Pebble Hills Boulevard (between John Hayes Street and the future Tim Floyd Street) and at the intersection of the future extensions of Ralph Seitsinger Drive and Tim Floyd Street; Property Owners: Ranchos Real Land Holdings, LLC and County of El Paso SUAX12-00002		Omitted
18126	2-18-2014	An Ordinance changing the zoning of portion of Lot 1 and 2, Block 30, Alexander Addition, 1401 N. Kansas Street, City of El Paso, El Paso County, Texas from A-2 (Apartment) to S-D (Special Development). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 1401 N. Kansas Street. Property Owner: Terry M. Hammond. PZRZ13-00046		Omitted
18127	2-18-2014	An Ordinance changing the zoning of Lots 21-24, Block 17, Del Norte Acres, City of El Paso, El Paso County, Texas from A-2 (Apartment) to C-1 (Commercial) and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: East of Gateway North Boulevard and North of Arlen Avenue. Property Owner: Arneson Pool Services, Inc. PZRZ13-00033		Omitted
18128	2-18-2014	An Ordinance releasing conditions placed on property by Ordinance No. 8953 which changed the zoning of a Portion of Tract 1F, Section 27, Block 81, Township 1, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject property: East of Martin Luther King Jr. and North of the Patriot Freeway. Property Owner: Camino Real Investments I, Ltd. PZCR13-00010		Omitted
18129	2-18-2014	An Ordinance authorizing the City Manager to execute a partial release and satisfaction of restrictions, conditions and reservations contained in the warranty deed with vendor's lien to Foster-Schwartz Development Corporation recorded under Volume 1702, Page 1623-1628, corrected in Volume 1938, Page 50, Real Property Records, El Paso County, Texas.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18130	3- 4-2014	An Ordinance amending Ordinance 017113 adopting Impact Fees for Water and Wastewater facilities, establishing Impact Fee Service Areas, providing for assessment and collection of Impact Fees; providing for accounts for Impact Fees and use of funds in these accounts; providing for appeals; and providing for other provisions required under state law including procedural provisions; to recodify Title 15 (Public Services), Chapter 15.20 to 15.22 of the El Paso City Code; to amend Section 15.22.060 (Land Use Assumptions and Service Area) to adopt updated Land Use Assumptions and Service Areas, to amend Section 15.22.070 (Capital Improvements Plan) to adopt updated Capital Improvements Plan, and to amend Section 15.22.100 (Maximum Fee and Actual Fee to be Assessed) to update the Impact Fees adopted by City Council.	3	15.22.010—15.22.190
18131	3- 4-2014	An Ordinance vacating a 1.9075 acre portion of Edgar Road Right-of-Way out of S.A. & M.G. Survey No. 266, City of El Paso, El Paso County, Texas. SURW13-00012. Applicant: Prime Desert Properties, LLC		Omitted
18132	3- 4-2014	An Ordinance amending the Final Project Plan and Final Reinvestment Zone Financing Plan for the Tax Increment Reinvestment Zone Number Five, City of El Paso, Texas; Adopting said amendments as required by Section 311.011(e) Texas tax code; Also providing a severability clause.		Omitted
18133	3- 4-2014	An Ordinance changing the zoning of a Portion of Lots 22, 23 and 24, Palmdale Acres, 7235 North Loop Drive, City of El Paso, El Paso County, Texas from R-F (Ranch-Farm) to C-1 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 7235 North loop Drive. Property Owner: Lillian Jacquez & Carlos Diaz Jr. PZRZ13-00030		Omitted
18134	3- 4-2014	An Ordinance amending Title 20 (Zoning), Chapter 20.02 (General Provisions and Definitions) Article II (Definitions) to delete definitions of Sign, Off-Premise Temporary Subdivision Directional in Section 20.02.938 and to substitute the definition of Sign, Temporary Subdivision with Temporary Subdivision Kiosk Sign in Section 20.02.984; and Chapter 20.08 (Appendix A), Table of Permissible Uses, Section 16 Temporary uses to add Temporary Subdivision Kiosk Sign; and Chapter 20.18 (Sign Regulations) Article I (General Provisions), Section 20.18.050 (Definitions) to delete Off-Premises Temporary Subdivision Directional Sign and Temporary Subdivision Sign and add Temporary Subdivision Kiosk Sign; Article III (Billboard Regulations) to add a new Section 20.18.310 Temporary Subdivision Kiosk Sign; Article IV (On-Premises Sign Regulations) Section 20.18.500 (Temporary On-Premises Signs) to delete Subsection B. Temporary Subdivision Identification Sign Requirements and re- letter Subsections B-H, of the El Paso City Code. The penalty is as provided in Chapter 20.24 of the El Paso City Code.	1 Rpld	20.02.938
				20.02.984
			2	20.08.030
				Ch. 20, App. A
			3	20.18.050
			4 Added	20.18.310
			5 Rpld	20.18.500 B.
			Rnbd	20.18.500 C.—H.
			as	20.18.500 B.—G.

Ordinance Number	Approval Date	Description	Section	Section this Code
18135	3- 4-2014	An Ordinance amending Title 20 Zoning, Chapter 20.10 Supplemental Use Regulations, to create a Civic and Cultural District, and Chapter 20.18 Sign Regulations, Article IV On-Premises Sign Regulations, to create standards for Civic and Cultural District signs of the El Paso City Code. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.	1 Added	20.10.146
			2 Added	20.18.465
18136	3- 4-2014	An Ordinance authorizing the City Manager to sign a Special Warranty Deed conveying a 0.04 acre Parcel of land being a Portion out of a Tract described in Volume 977, Page 454, Real Property Records of El Paso County, Texas and being a Portion of F. Neve Survey No. 8, and a Portion out of The Setter and Schneider, One Acre Tract as shown on the Map of Chula Vista Addition, an addition in the City of El Paso, El Paso County, Texas according to the Plat thereof, recorded in Volume 6, Page 49, Plat Records of El Paso County Texas, located at the rear of 500 Radford Street and any other documents necessary to complete the sale to Jose A. Montoya		Omitted
18137	3- 4-2014	An Ordinance to amend Title 12 (Vehicles & Traffic), Chapter 12.54 (Towing Regulations and Fees) to amend Section 12.54.010 (Definitions) to amend the definitions pursuant to State code; Section 12.54.020 (Maximum Fee Schedule) to amend the maximum fees that may be charged within the City for non-consent vehicle tows, to amend the weight classifications of vehicles, and establish the maximum fees for medium- and heavy-duty tows; Section 12.54.030 (Removal of Debris) to amend the term Tow Truck Operator to Tow Company; and Section 12.54.050 (Towing Fee Studies) to delete the Police Legislative Review Committee.	1	12.54.010
			2	12.54.020 A., D.
			3	12.54.030 A.
			4	12.54.050 A., C., D.
18138	3- 4-2014	An Ordinance authorizing the City Manager to execute a quitclaim (Tax Resale) deed conveying all right, title and interest to RANDY SHIELDS in accordance with Section 34.05 (h) of the Texas Property Tax code to the following and described parcel: Lot 5, Block 236, Mountain Shadow Estates #31, in El Paso County, Texas.		Omitted
18139	3- 4-2014	An Ordinance authorizing the City Manager to execute a quitclaim (Tax Resale) deed conveying all right, title and interest to MARCO A. HERNANDEZ in accordance with Section 34.05 (h) of the Texas Property Tax code to the following and described parcels: Lot 1, Block 879, Horizon City #100, in El Paso County, Texas. Lots 15 and 16, Block 155, Horizon City #17, in El Paso County, Texas. Lot 1, Block 388, Mountain Shadow Estates #54, in El Paso County, Texas. Lot 19, Block 23, Horizon City #9, in El Paso County, Texas. Lot 20, Block 23, Horizon City #9, in El Paso County, Texas.		Omitted
18140	3- 4-2014	An Ordinance authorizing the City Manager to execute a quitclaim (Tax Resale) deed conveying all right, title and interest to STACYE MCCLAIN in accordance with Section 34.05 (h) of the Texas Property Tax Code to the following and described parcel: Lot 4, Block 236, Mountain Shadow Estates #31, in El Paso County, Texas.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18141	3-18-2014	An Ordinance changing the zoning of a portion of Lot 3, Block 391, Tierra Del Este Unit Sixty Nine and a portion of Section 37, Block 79, Township 2, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas from R-5 (Residential) to C-2 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: North of Pebble Hills Boulevard and East of John Hayes Street. Property Owner: Ranchos Real XVI, LCC. PZRZ13-00043		Omitted
18142	3-18-2014	An Ordinance changing the zoning of Lots 4 thru 10, Block 114, Campbell Addition, 501, 503, 505, 511, and 513 South Campbell Street, City of El Paso, El Paso County, Texas from A-3 (Apartment) to G-MU (General-Mixed Use) and approving a Master Zoning Plan. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 501, 503, 505, 511, and 513 South Campbell Street. Property Owner: Eduardo & Josefina Soto. PZRZ13-00044		Omitted
18143	3-18-2014	An Ordinance granting a non-exclusive franchise to "EP Elite Trash Valet, LLC", to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the terms and conditions described in the ordinance; the penalty as provided in Section 9.04.630 of the El Paso City Code.		Omitted
18144	3-18-2014	An Ordinance granting to Paul Berube a non-exclusive franchise for litter receptacles on sidewalks and other City property.		Omitted
18145	4- 1-2014	An Ordinance authorizing the issuance of "City of El Paso, Texas, Combination Tax and Airport Revenue Certificates of Obligation, Taxable Series 2014", in an amount not to exceed $40,000,000, levying a continuing direct annual ad valorem tax for the payment of said Certificates; and resolving other matters which are necessary to effectuate said issuance, including the delegation of matters relating to the sale and issuance of the Certificates to an authorized City official within certain specified parameters.		Omitted
18146	4- 1-2014	An Ordinance authorizing the issuance of "City of El Paso, Texas, General Obligation Refunding and Improvement Bonds, Series 2014," in an approximate par amount of $102,500,000; levying a continuing direct annual ad valorem tax for the payment of said Bonds; and resolving other matters which are necessary to effectuate said issuance, including the delegation of matters relating to the sale and issuance of the Bonds to an authorized City official within certain specific parameters.		Omitted
18147	4- 1-2014	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.010 (Schedule I - One-way streets), of the El Paso City Code, to adjust the one-way limits in the Downtown area and on North and South Desert Boulevard, the penalty being as provided in Section 12.84.010 of the El Paso City Code.	1	12.88.010 13., 34., 39.
			2 Rpld	12.88.010 33., 55., 75., 82., 93.
			3 Added	12.88.010 93., 94.
18148	4- 1-2014	An Ordinance amending Title 9 (Health and Safety), Chapter 9.04 (Solid Waste Management), Section 9.04.020 (Definitions) to amend the definition of "Self- Transporter" to include single or double-axle, non-dump trailers; the penalty being as provided In Section 9.04.630 of the El Paso City Code.	1	9.04.020 61.
18149	4- 1-2014	An Ordinance granting a non-exclusive franchise to "Demcon Disposal Management, LLC", to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the terms and conditions described in the ordinance; the penalty as provided in Section 9.04.630 of the El Paso City Code.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18150	4- 1-2014	An Ordinance changing the zoning of the westerly half of Block 31, Lots 17-20, and portion of lot 16, of Alexander Addition, 401 and 405 River Avenue, City of El Paso, El Paso County, Texas from A-2 (Apartment) to G-MU (General Mixed Use) and approving a Master Zoning Plan. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 401 & 405 River Avenue. Property Owner: Eduardo & Josephina Soto. PZRZ14-00009		Omitted
18151	4- 1-2014	An Ordinance changing the zoning of the South 24 feet of Lot 13, and all of Lots 14, 15, and 16, Block 163, Alexander Addition, 2208 N. Oregon, City of El Paso, El Paso County, Texas from SD (Special Development) to G-MU (General Mixed Use) and approving a Master Zoning Plan. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 2208 N. Oregon. Property Owner: Margaret Pon. PZRZ13-00041		Omitted
18152	4- 1-2014	An Ordinance amending Title 20 (Zoning), Chapter 20.18 (Sign Regulations), Article IV (On Premises Sign Regulations), Section 20.18.410 (R-F, R-1, R-2, R-2A, R-3, R-3A, R-4, R-5, RMH, AND PMD DISTRICTS), Subsection C (School and Church Monument Signs). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.	1	20.18.410 C.
18153	4- 1-2014	An Ordinance Amending Title 19 (Subdivisions), Chapter 19.20 (Parks and Open Space), Section 19.20.030 (Parkland Calculation), Section 19.20.050 (Standards for Deeded Parkland) and Section 19.20.120 (Parkland Fees Special Fund) of the City of El Paso City Code to amend the requirements, standards and fee structure for parkland dedication and to clarify standards for park projects developed through the City of El Paso Engineering and Capital Construction Programs. The penalty being as provided in Chapter 19.42 of the City of El Paso City Code.	1	19.20.030 B.1.
			2	19.20.050
			3	19.20.120
18154	4- 1-2014	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.44 (Stopping, Standing and Parking Generally), Section 12.44.290 (Restrictions on Parking in Downtown Parking Districts) of the El Paso City Code, to establish a process for the creation of Downtown Parking Districts, to revise the application requirements for a Downtown Parking District parking permit, to authorize a replacement fee for Downtown Parking District parking permits and to identify the boundaries of an area in the vicinity of the El Paso Ballpark and establish rules for parking in that area, and to amend Chapter 12.88 (Schedules), to add Section 12.88.220 (Schedule XIX - Restrictions of Parking in Downtown Parking Districts) to expand parking Zone A to include an area in the vicinity of the El Paso Ballpark and the Old San Francisco District and to realign the boundaries of the existing Downtown Parking Districts; the penalty being as provided in Chapters 12.84 (Violation - Penalty) and 12.85 (Parking Violations) of the El Paso City Code.	1	12.44.290
			2 Added	12.88.220

Ordinance Number	Approval Date	Description	Section	Section this Code
18155	4-15-2014	An Ordinance granting special permit no. PZST14-00004, to allow for a Solar Major Utility Facility to Newman Solar LLC., on the property described as Parcel A: A portion of Tract 4A, Section 11, Block 81, Township 1, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas, Parcel B: A portion of Tract 1, Section 12, Block 81, Township 1, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas, and Parcel C: A portion of Tract 1, Section 12, Block 81, Township 1, Texas and Pacific Railway Company Surveys and Tract 4A, Section 11, Block 81, Township 1, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.730 of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Applicant: Newman Solar LLC, Location: South of Stan Roberts Sr. Avenue and West of McCombs Drive, PZST14-00004		Omitted
18156	4-15-2014	An Ordinance releasing all conditions placed on property by Ordinance No. 3962, Ordinance No. 4976, and Ordinance No. 5237, and imposing a condition, on the property legally described as Lots 1 and 2, Block 1, Eastwood Heights Unit V, Replat "C", 10400 Montwood Drive, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject property: 10400 Montwood Drive. Property Owner: WestStar Bank. PZCR13-00012		Omitted
18157	4-15-2014	An Ordinance approving a detailed site development plan for a portion of Lot 1, Block 2, Crossroads Subdivision Unit 2, 7955 N. Mesa, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.150. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 7955 N. Mesa. Property Owner: Downstream Partners LP. PZDS13-00020		Omitted
18158	4-15-2014	An Ordinance granting Special Permit No. PZST14-00005, to allow for a Major Utility Facility for El Paso Electric Company on the property described as a portion of Tract 1A (n/k/a Tract 1F), Block 4, Ascarate Grant, 651 Hawkins Boulevard, City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.730 of the El Paso City Code. The penalty as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 651 Hawkins Boulevard. Property Owner: El Paso Electric Property. PZST14-00005		Omitted
18159	4-15-2014	An Ordinance amending Ordinance No. 012985 which vacated, for vehicular traffic, a portion of San Francisco Avenue and El Paso Street abutting portions of Block 16, Mills Addition, and Block 17 Herald Addition, City of El Paso, El Paso County, Texas to reopen a portion of San Francisco Avenue to allow vehicular traffic.		Omitted
18160	4-15-2014	An Ordinance granting a Special Privilege License to the El Paso Downtown Management District for the installation, maintenance, use, and repair of a custom bike rack within a portion of city right-of-way at 400 West San Antonio Avenue.		Omitted
18161	4-15-2014	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.44 (Stopping, Standing and Parking Generally), Section 12.44.180 (Regulations Pertaining To Certain Special Situations) of the El Paso City Code, to create and establish the regulations for a new parking zone in the vicinity of the El Paso Ballpark: the penalty being as provided in Chapter Section 12.84.010A (Violation-Penalty) of the El Paso City Code.	1 Added	12.44.180 B.3.

Ordinance Number	Approval Date	Description	Section	Section this Code
18162	4-15-2014	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.041 (Schedule IVA - Parking Prohibited During Certain Hours - School Days Only) to add Knorr Place, the penalty being as provided in Section 12.84.010 and Chapter 12.85 of the El Paso City Code.	1 Added	12.88.041 25.
18163	4-15-2014	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.200 (Schedule XVII - Restrictions On Parking In Residential Districts), of the El Paso City Code, to create a new zone for the Sunset Heights Neighborhood, the penalty being as provided in Section 12.84.010 and Chapter 12.85 of the El Paso City Code.	1 Added	12.88.200, Zone U
18164	4-22-2014	An Ordinance granting Special Permit No. PZST13-00024, to allow for infill development with a reduction in lot area and width and a 50% parking reduction on the property described as Lot 3, Singh Addition, 9221 Reno, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 9221 Reno. Property Owner: Chris Alderete. PZST13-00024		Omitted
18165	4-29-2014	An Ordinance releasing all conditions placed on property by Special Contract dated June 3, 1970, and Ordinance No. 10030 which changed the zoning of Lot 3, Block 40, Cedar Grove Park Unit Five Replat "A", 7380 Alameda Avenue, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 7380 Alameda. Property Owner: City of El Paso, Texas. PZCR13-00009		Omitted
18166	4-29-2014	An Ordinance releasing all conditions placed on property by Ordinance No. 7544 which changed the zoning of a portion of A.F. Miller Survey no. 214 N/K/A Tract 35, A.F. Miller Survey No. 214, 111 Rio Flor Place, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject property: 111 Rio Flor Place. Property Owner: Maria Ovalle. PZCR14-00001		Omitted
18167	4-29-2014	An Ordinance changing the zoning of Tracts 15, 15A, 15B and 16D, Block 52, Ysleta Grant, 1139, 1149, and 1175 Southside Road, City of El Paso, El Paso County, Texas from R-F (Ranch-Farm) to C-4 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 1139, 1149, and 1175 Southside Road. Property Owner: Karina Ruiz Sanchez, Guadalupe Daniel Ruiz, & Daniel Ruiz. PZRZ14-00002		Omitted
18168	4-29-2014	An Ordinance changing the zoning of a portion of Lot 1, Pendale Industrial Unit A Replat, 8600 Gateway East Boulevard, City of El Paso, El Paso County, Texas from P-I (Planned Industrial) to C-4 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Applicant: Calvin K. Kessler and Geraldine Kessler, Location: 8600 Gateway East Boulevard, PZRZ14-00011		Omitted
18169	5- 6-2014	An Ordinance amending Title 3 (Revenue and Finance) of the El Paso City Code by adding Chapter 3.45 (Hire El Paso First - Local Bid Preference) in order to set forth the guidelines for granting a local preference in city procurements.	1 Added	3.45.010—3.45.060
18170	5-13-2014	An Ordinance amending Title 3 (Revenue and Finance), Chapter 3.36 (Cash Reserves), Section 3.36.010 (Cash Reserve Fund) of the City Code of the El Paso to Conform the Required Cash Reserve Fund Amount to the Revised City Charter Requirement.	1	3.36.010

Ordinance Number	Approval Date	Description	Section	Section this Code
18171	5-13-2014	An Ordinance authorizing the City Manager to sign a Contract of Sale and a Special Warranty Deed conveying a 0.2594 acre parcel of land being a Portion Of Lot 1, Block 2, International Industrial Center, Unit 1, City Of El Paso, El Paso County, Texas, and any other documents necessary to complete the sale to EP Shalom, L.P.		Omitted
18172	5-20-2014	An Ordinance changing the zoning the following parcels: Parcel 1: a portion of Section 30, Block 80, Township 1, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas, from R-F (Ranch-Farm) to C-2 (Commercial); and, Parcel 2: a portion of Section 30, Block 80, Township 1, Texas and Pacific Railways Company Surveys, City of El Paso, El Paso County, Texas, from R-F (Ranch-Farm) to C-3 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: South of Patriot Freeway and East of McCombs Street. Property Owner: EP Plaza Partners, LP. PZRZ13-00026		Omitted
18173	5-20-2014	An Ordinance granting special permit no. PZST14-00009, to allow for a Ballroom/Banquet Hall in a C-2/c/sc (Commercial/conditions/special contract) zone district on the property described as a portion of Lot 1, Block 1, Las Flores Subdivision Unit 4, 8825 North Loop Drive, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.260 of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Applicant: Eloisa Gutierrez, Location: 8825 North Loop Drive		Omitted
18174	5-20-2014	An Ordinance changing the zoning of the South 35 feet of Lots 28 through 32, Block 62, Supplemental Map No. 1 of East El Paso, 512 N. San Marcial Street, City of El Paso, El Paso County, Texas from R-5 (Residential) to R-MU (Residential-Mixed Use) and approving a Master Zoning Plan. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 512 N. San Marcial Street. Property Owner: Gary and Laura Monteleone. PZRZ13-00040		Omitted
18175	5-20-2014	An Ordinance restating special privilege license granted to Texas Tech University Health Sciences Center at El Paso by Ordinance No. 017996 for the construction, maintenance, use, and repair of a surface parking lot, and to allow for overhead bird netting and drainage structures within portions of city right-of-way along Alberta Avenue beneath the Raynolds Street Overpass Bridge for a term of four years with an option to renew for one additional four year term and one additional two year term.		Omitted
18176	5-20-2014	An Ordinance amending Ordinance 010367 in its entirety to provide for an updated System of Records Retention, Retrieval and Destruction.		Omitted
18177	6- 3-2014	An Ordinance granting Special Permit No. PZST13-00026, to allow for Infill Development with a reduction in rear setback and a 50% parking reduction on the property described as Lots 17-25, and the East 10' of Lot 26, Block 23, Cotton Addition, 2030 Grant Avenue, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 2030 Grant Avenue. Property Owner: El Paso Chinese Baptist Church. PZST13-00026		Omitted
18178	6- 3-2014	An Ordinance changing the zoning of Tract 9A, Block 5, Upper Valley Surveys, 261 Lindbergh Avenue, City of El Paso, El Paso County, Texas from R-1 (Residential) to R-2 (Residential). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 261 Lindbergh Avenue. Property Owner: Lawrence L. and Patricia S. Bylicki. PZRZ14-00010		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18179	6- 3-2014	An Ordinance releasing a condition and amending a condition placed on property by Ordinance No. 014596 which changed the zoning of Lots 3 and 4, Block 2, Medano Heights Subdivision, Replat "A", City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: North of Medano Drive and East of Desert North Boulevard. Property Owner: The Housing Authority of the City of El Paso. PZCR13-00005		Omitted
18180	6- 3-2014	An Ordinance changing the zoning of Lots 3 and 4, Block 2, Medano Heights Subdivision, Replat "A", City of El Paso, El Paso County, Texas from R-5/c (Residential/conditions) to S-D/c (Special Development/conditions). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: North of Medano Drive and East of Desert North Boulevard. Property Owner: The Housing Authority of the City of El Paso. PZRZ13-00012		Omitted
18181	6- 3-2014	An Ordinance approving a detailed site development plan for Lots 3 and 4, Block 2 Medano Heights Subdivision, Replat "A", City of El Paso, El Paso County, Texas, Pursuant to Section 20.04.150 and 20.10.360. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: North of Medano Drive and East of Desert North Boulevard. Property Owner: The Housing Authority of the City of El Paso. PZDS13-00022		Omitted
18182	6-17-2014	An Ordinance granting Special Permit No. PZST13-00027, to allow for Infill Development with front, rear, side yard setbacks and parking reduction on the property described as a portion of Lots 14-26, Block 4, Hughes Subdivision, 5713-5717 Welch Avenue, City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 5713-5717 Welch Avenue. Property Owner: Jorge Valenzuela. PZST13-00027		Omitted
18183	6-17-2014	An Ordinance changing the zoning of a portion of Lots 14-26, Block 4, Hughes Subdivision, 5713-5717 Welch Avenue, City of El Paso, El Paso County, Texas from R-5 (Residential) to S-D (Special Development). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 5713-5717 Welch Avenue. Property Owner: Jorge Valenzuela. PZRZ13-00037		Omitted
18184	6-17-2014	An ordinance changing the zoning of the following parcels: Parcel 1: Lots 17, 18, and 19, Rangers Rest Subdivision, 1053 & 1061 Ranger Street, City of El Paso, El Paso County, Texas from R-4/Sp (residential/special permit) to R-MU (residential mixed use); and, Parcel 2: portion of Tract 3A, Block 55, Ysleta Grant Surveys, City of El Paso, El Paso County, Texas from R-f (ranch-farm) to R-MU (residential mixed use), approving a master zoning plan, and repealing Ordinance No. 017347 which granted a special permit for an assisted living facility and convalescent home for Parcel 1. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
18185	6-17-2014	An ordinance granting Special Permit No. PZST14-00011, to allow for a ground-mounted 75' personal wireless service facility on the property described as Lot 78, Block 33, Tierra Del Este #26 amending, 3070 Joe Battle, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.455 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18186	6-17-2014	An ordinance changing the zoning of Tract 23-a-3, af Miller Survey No. 214, 2 De Leon Drive, City of El Paso, El Paso County, Texas from R-5/C/SP (residential/condition/special permit) to R-MU (residential mixed use) and aproving a master zoning plan. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
18187	6-17-2014	An ordinance changing the zoning of Lots 22 & 23, Block 127, Highland Park, 2814-2816 Mobile Avenue, City of El Paso, El Paso County, Texas, from R-5 (residential) to C-2 (commercial); and, Lots 24 & 25, Block 127, Highland Park, 2812 Mobile Avenue, City of El Paso, El Paso County, Texas, from R-5 (residential) to C-2 (commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
18188	6-17-2014	An ordinance releasing all conditions placed on property by Ordinance No. 7591 dated September 14, 1982, which changed the zoning of a portion of Lot1 and portion of Lot 2, Block i, Las Flores Subdivision, Unit 4, 8825 North Loop Drive, City of El Paso, El Paso County, Texas and Ordinance No. 158i6 dated June 15, 2004, which changed the zoning of a portion of Lot 1 and portion of Lot 2, Block 1, Las Flores Subdivsion, Unit 4, 8825 North Loop, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
18189	6-17-2014	An ordinance changing the zoning of a portion of Lot 10, Block 64, Vista Del Sol Unit Thirteen, 10640 Montwood Drive, City of El Paso, El Paso County, Texas from R-3 (residential) to S-D (special development). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
18190	6-17-2014	An ordinance granting Special Permit No. PZST14-00017, to allow for infill development with reduced lot size and cumulative setbacks, on the property described as a portion of Tract 1, Country Club South Side, 610 Meadowlark Drive, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 infill development and 20.04.320 of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
18191	6-17-2014	An ordinance amending Title 19 (Subdivisions), Chapter 19.26 (Alternative Subdivision/Smart Code Designs), Section 19.26.020.E (Infill Development), of the El Paso City Code to reduce park dedication fees by 50% for non-residential infill development of up to five acres. The penalty is as provided in Chapter 19.42 of the City of El Paso City Code.	1 Added	19.26.020 E.7.
18192	6-17-2014	An ordinance amending Title 19 (Subdivisions), Chapter 19.10 (Dedication, Construction Requirements and City Participation), Section 19.10.050 (Roadway participation policies-Improvement of adjacent perimeter roads and utilities) of the El Paso City Code to amend Subparagraph A, to allow for the waiver of the dedication and improvements of adjacent substandard roads when specific criteria are met. The penalty is as provided in Chapter 19.42 of the City of El Paso City Code.	1	19.10.050 A.
18193	6-17-2014	An ordinance amending Title 9 (Health and Safety), Chapter 9.50 (Public and Workplace Smoking Restrictions) in its entirety relating to all provisions including clarification of definitions; clarification of in which public places smoking is prohibited and where smoking is not regulated; clarification regarding enforcement, violations and penalties; the penalty as provided in Section 9.50.130 of the El Paso City Code.	1 Rpld	9.50.010—9.50.160
			Added	9.50.010—9.50.150
			2	9.50.070, 9.50.080 A.3.

Ordinance Number	Approval Date	Description	Section	Section this Code
18194	6-17-2014	An ordinance authorizing the city manager to execute a quitclaim (tax resale) deed conveying all right, title and interest in real property described as Tract 1-F-1-H (0.074 acre) & Tract 1-E-1-A (0.079 acre), Block 5 Ascarate Grant, in El Paso County, Texas to Miguel Rivera, in accordance with Section 34.05(h) of the Tax Code.		Omitted
18195	6-24-2014	An Ordinance vacating a portion of Virginia Street Right-of-Way, adjacent to Blocks 70 and 71, Alexander Addition, City of El Paso, El Paso County, Texas.		Omitted
18196	6-24-2014	An Ordinance vacating a portion of Lackland Street Right-of-Way within Pridham Survey No. 274, City of El Paso, El Paso County, Texas.		Omitted
18197	6-24-2014	An Ordinance authorizing the City Manager to sign a lease with El Paso Independent School District for a combined 99,921 square foot leased property consisting of 1) an 81,721 square foot property that includes all of block 70, Alexander Addition and a portion of St. Vrain Street vacated in the city of El Paso, which is a portion of Tom Lea Park, and 2) the 18,200 square foot west one-half of Virginia street vacated in the city of El Paso for a 99 year term. Consideration will be a 99 year lease of district property in northeast El Paso for City's use as a public park.		Omitted
18198	6-24-2014	An Ordinance authorizing the City Manager to sign a lease with El Paso Independent School District for a combined 85,400 square foot leased property consisting of 1) an 42,440 square foot portion of block 13, Manhattan heights addition and a portion of unplatted land in Memorial Park in the City of El Paso, and 2) the 42,960 square foot south half of Wheeling Street vacated in the City of El Paso for a 99 year term; and repealing ordinance no. 17760. Consideration is conveyance of district's fee interest of vacated Lackland Street near Altura Street, joint use of a portion of district flat field for pedestrian pathway and city's use of district's multipurpose center to be constructed on leased site.		Omitted
18199	7- 1-2014	An ordinance changing the zoning of a portion of Tracts 6 and 10 and Edgar Road Right-Of-Way, S.A. & M.G. Railroad Company Survey 266, City of El Paso, El Paso County, Texas from C-1/C (commercial/condition), C-3/C (commercial/condition) and C-3 (commercial) to Pr-11 (planned residential-II). The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
18200	7- 1-2014	An ordinance changing the zoning of all of Tract 20-B4, Block 55, Ysleta Grant, 9350 Escobar Drive, City of El Paso, El Paso County, Texas from R-f (ranch and farm) to C-4 (commercial), and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.		Omitted
18201	7- 1-2014	An ordinance amending Title 5—Business License and Permit Regulations—Chapter 5.12—Dealers in Secondhand Goods, Dealers in Crafted Precious Metals, Coin Dealers and Pawnbrokers—in its entirety relating to all provisions including clarifications and revisions of definitions and exclusions; clarification regarding license denial, suspension, revocation; clarification regarding violations and penalties.	1 Rpld	5.12.010—5.12.340
			Added	5.12.010—5.12.220

Ordinance Number	Approval Date	Description	Section	Section this Code
18202	7- 1-2014	An ordinance amending Title 9 (Health and Safety), Chapter 9.12 (Food and Food Handling Establishments), Section 9.12.007 to clarify the applicability of the chapter; Section 9.12.010 (Definitions) to clarify the definitions to exclude certain establishments from regulation by this chapter and to add certain definitions from the Texas Food Establishment Rules; to correct Subsection 9.12.070K so that the license fee is based on the square footage of the actual food establishment area; and clarifying the food handler identification card requirements in Section 9.12.130; the penalty as provided in Section 9.12.890 of the El Paso City Code.	1 Added	9.12.007
			2	9.12.010
			3	9.12.070 K.
			4	9.12.130 A.
18203	7-15-2014	An Ordinance granting Special Permit No. PZST14-00010, to allow for Infill Development with reduced rear and side yard setbacks on the property described as Lots 9 and 10, Block 25, Alexander Addition, 1319 N. Oregon Street, City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 1319 N. Oregon Street. Property Owner: Hal Marcus. PZST14-00010		Omitted
18204	7-15-2014	An Ordinance changing the zoning of a portion of Lots 1, 2, 3, 4, 5, 24, 25, 26, a portion of Tract 1 and a portion of a 20 feet alley (vacated), Block 89A, Logan Heights Addition, 5312 Alabama Street, City of El Paso, El Paso County, Texas from R-4 (Residential) and A-2 (Apartment) to C-1 (Commercial), and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 5312 Alabama Street. Property Owner: Border Loop Dialysis, LLC. PZRZ14-00014		Omitted
18205	7-15-2014	An Ordinance granting Special Permit No. PZST14-00002, to allow for infill development with a reduction in rear and cumulative yard setbacks, and to permit an assisted living facility for eight persons on the property described as a portion Lot 18, Block 6, Piedmont Hills Addition, Unit One, 4180 Berkshire Place, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development and 20.04.320 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 4180 Berkshire Place. Property Owner: Little Dream Homes LLC. PZST14-00002		Omitted
18206	7-15-2014	An Ordinance granting Special Permit No. PZST14-00015, to allow for infill development with a reduction in rear setback on the property described as Lot 5, Block 1, Armour Square, 5550 Confetti, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 5550 Confetti. Property Owner: Oscar Gomez. PZST14-00015		Omitted
18207	7-15-2014	An Ordinance changing the zoning of the North 75 feet of Tract 228, Map of Sunrise Acres, 8707 Gateway South, City of El Paso, El Paso County, Texas from R-4 (Residential) to C-2 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 8707 Gateway South. Property Owner: Arturo de la Riva & Angelita de la Riva. PZRZ14-00012		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18208	7-15-2014	An Ordinance granting Special Permit No. PZST14-00019, to allow for a contractor's yard (small) on the property described as the North 75 feet of Tract 228, Map of Sunrise Acres, 8707 Gateway South, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.320 of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 8707 Gateway South. Property Owner: Arturo de la Riva & Angelita de la Riva. PZST14-00019		Omitted
18209	7-15-2014	An Ordinance amending Title 18 (Building and Construction), Chapter 18.10 (Residential Code), of the El Paso City Code, to add an exception to the fire construction requirement for exterior walls, excepting zero lot line properties provided certain requirements are met, the penalty being as provided by Section 18.02.111 (Violations and Penalties) of the El Paso City Code . Applicant: City of El Paso, City Development Department.	1 Added	18.10.050.1
18210	7-15-2014	An Ordinance Granting a Special Privilege License to Joseph Nebham for the Use, Maintenance, and Repair of Portions of City Right-of-Way Along Franklin Avenue Adjacent to the Property Located at 311 East Franklin Avenue, El Paso Texas.		Omitted
18211	7-15-2014	An Ordinance granting Special Permit No. PZST14-00018, to allow for infill development with a reduction in rear setback and a 50% parking reduction on the property described as Lots 28-32, Block 39, Franklin Heights Addition, 1423 E. Missouri Avenue, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 1423 E. Missouri Avenue. Property Owner: Elmshire, LLC. PZST14-00018		Omitted
18212	7-22-2014	An Ordinance authorizing the issuance of "City of El Paso, Texas, Combination Tax and Revenue Certificates of Obligation, Series 2014" in an amount not to exceed $72 million; levying a continuing direct annual ad valorem tax for the payment of such certificates; and resolving other matters which are necessary to effectuate such issuance, including the delegation of matters relating to the sale to an authorized City official within certain specified parameters.		Omitted
18213	7-22-2014	An Ordinance authorizing the issuance of "City of El Paso, Texas, General Obligation Refunding Bonds, Series 2014A" in an amount not to exceed $59 million to achieve present value debt service savings; levying a continuing direct annual ad valorem tax for the payment of such bonds; and resolving other matters which are necessary to effectuate such issuance; including the delegation of matters relating to the sale to an authorized City official within certain specified parameters.		Omitted
18214	7-29-2014	An Ordinance changing the zoning of Lots 17 through 26, and a portion of Lots 27 through 32, Block 58, Cotton Addition, 1918 Texas Avenue, City of El Paso, El Paso County, Texas from M-1 (Manufacturing) to G-MU (General Mixed Use) and approving a Master Zoning Plan. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 1918 Texas Avenue. Property Owner: Young Women's Christian Association of El Paso DBA YWCA El Paso Del Norte Region. PZRZ14-00022		Omitted
18215	7-29-2014	An Ordinance approving a detailed site development plan for Lot 5 and a portion of Lot 4, Block 3, Keystone Business Park, 4360 Doniphan Drive, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.150. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 4360 Doniphan Drive. Property Owner: Mentis REEP, LLC. PZDS14-00014		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18216	7-29-2014	An Ordinance changing the zoning of a portion of Lots 14-26, Block 4, Hughes Subdivision, 5713-5717 Welch Avenue, City of El Paso, El Paso County, Texas from R-5 (Residential) to S-D (Special Development) and repealing Ordinance No. 018183. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 5713-5717 Welch Avenue. Property Owner: Jorge Valenzuela. PZRZ13-00037		Omitted
18217	7-29-2014	An Ordinance granting Special Permit No. PZST13-00027, to allow for Infill Development with front, rear, side yard setbacks and parking reduction on the property described as a portion of Lots 14-26, Block 4, Hughes Subdivision, 5713-5717 Welch Avenue, City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.280 Infill Development of the El Paso City Code and repealing Ordinance No. 018182. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 5713-5717 Welch Avenue. Property Owner: Jorge Valenzuela. PZST13-00027		Omitted
18218	7-29-2014	An Ordinance amending Title 20 (Zoning), Chapter 20.02 (General Provisions and Definitions), to amend the definition of transitional housing, add a definition for halfway house, Chapter 20.08 (Appendix A), Table of Permissible Uses, Section 3 to allow halfway house by special permit in certain commercial and manufacturing districts, Chapter 20.10 (Supplemental Use Regulations) to add standards and regulations for halfway house; and (Appendix C) Table of Parking Requirements and Standards to add standards for halfway house, of the El Paso City Code. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.	1	20.02.1105
			Added	20.02.429
			2	20.08.030 C.
				Tit. 20, App. A
			3 Added	20.10.266
			4	Tit. 20, App. C
18219	7-29-2014	An Ordinance amending Ordinance No. 017793 to modify the boundaries of Tax Increment Reinvestment Zone Number Six, City of El Paso, Texas to include an additional area in the Medical Center of Americas Master Plan Boundary in El Paso: Addition A, as more fully described herein.		Omitted
18220	8- 5-2014	An Ordinance changing the zoning of Tract 1, Block 13, Ysleta Grant, 8137 San Jose Road, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) to S- D (Special Development). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 8137 San Jose Road. Property Owner: Brenda I. Boysselle. PZRZ14-00017		Omitted
18221	8- 5-2014	An Ordinance granting Special Permit No. PZST14-00012, to allow for a medical office on the property described as Lots 13, 14, and 15, Block 17, Del Norte Acres, 8894 & 8898 Gateway Boulevard North, City of El Paso, El Paso County, Texas, Pursuant to Section 20.04.260 of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 8894 & 8898 Gateway Boulevard North. Property Owner: Dr. Dipak Patel. PZST14-00012		Omitted
18222	8- 5-2014	An Ordinance changing the zoning of Lot 1, Block 28, Terrace Hills Addition Unit Four, 5101 Fairbanks Drive, City of El Paso, El Paso County, Texas from R-3 (Residential) to G-MU (General-Mixed Use) approving a Master Zoning Plan, and approving a reduction in the minimum district area. The penalties are as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 5101 Fairbanks Drive. Property Owner: Cavallion Developers, LLC. PZRZ14-00003		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18223	8-19-2014	An Ordinance amending Ordinance number 018064 which amended and updated the Foreign Trade Zone No. 68 Ordinance in its entirety; to set the FTZ Operations Training Seminar fee as listed in the tariff schedule; to set the annual fee for subzones as listed in the tariff schedule; to add language regarding the annual report requirement; to rename and modify the term "Small Manufacturing Business Accelerator" to "Manufacturing Business Incentive" and to clarify that incentive; and to revise Appendices D and E to the tariff schedule.		Omitted
18224	8-19-2014	An Ordinance amending Title 18 (Building and Construction), Chapter 18.02 (Building and Construction Administrative Code), Section 18.02.105 (Permits), Subsection 18.02.105.7 (Drawings and Specifications), of the El Paso City Code, to establish a fee for the conversion of paper plans to electronic format, the penalty being as provided by Section 18.02.111 (Violations and Penalties) of the El Paso City Code.	1	18.02.105.7
18225	8-19-2014	An Ordinance amending Title 18 (Building and Construction), Chapter 18.02 (Building and Construction Administrative Code), Section 18.02.106 (Permit Fees), Subsection 18.02.106.11 (Submission and Plan Review Fees), of the El Paso City Code, to establish a fee for additional review of plans which have been revised or amended after issuance of permit, the penalty being as provided by Section 18.02.111 (Violations and Penalties) of the El Paso City Code.	1	18.02.106.11
18226	8-19-2014	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.44 (Stopping, Standing and Parking Generally), Section 12.44.180 (Regulations Pertaining to Certain Special Situations), Paragraph 12.44.180 (B)(10) (News Media Zone), to allow the fee for news media plates to be set during the annual budget process, the penalty being as provided in Section 12.84.010 and Chapter 12.85 of the El Paso City Code.	1	12.44.180 B.10
18227	8-19-2014	An Ordinance amending Title 9 (Health and Safety), Chapter 9.04 (Solid Waste Management), Section 9.04.880 (City Abatement), Subsection 9.04.880E, to add reasonable expenses to include a fee for preparation of and release of liens; the penalty being as provided in Section 9.04.630 of the El Paso City Code.	1	9.04.880 E.
18228	8-19-2014	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.56 (Parking Meters), Section 12.56.020F (Installation) of the El Paso City Code to authorize the International Bridges Director to recommend parking meter day and time exception to City Council; to amend 12.56.020F.2 to extend the free Saturday downtown parking exception; and to amend Section 12.56.090A to be set during the annual budget; the penalty as provided for in Section 12.80.240 of the El Paso City Code.	1	12.56.020 E.
			2	12.56.090 A.
18229	8-19-2014	An Ordinance levying FY 2015 taxes.		Omitted
18230	8-19-2014	An Ordinance changing the zoning of a portion of Tract 1A-54, Block 1, Ascarate Grant, City of El Paso, El Paso County, Texas from A-O (Apartment-Office) to C-1 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: East of Lee Trevino and North of Vista del Sol. Property Owner: Marcos & Esther Calderon. PZRZ13-00032		Omitted
18231	8-19-2014	An Ordinance granting a Special Privilege License to Hotel Don Quixote LTD for the use, maintenance, and repair of portions of City right-of-way along Missouri Avenue adjacent to the property located at 600 North El Paso Street, El Paso Texas.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18232	8-19-2014	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.010 (Schedule 1 - One-Way Streets), to add a new location for the alley north of Yandell Avenue, the penalty being as provided in Section 12.84.010 and Chapter 12.85 of the El Paso City Code.	1 Added	12.88.010 95.
18233	8-19-2014	An Ordinance granting a non-exclusive franchise to "Loretto Investment Corporation" to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the terms and conditions described in the ordinance.		Omitted
18234	8-19-2014	An Ordinance granting a non-exclusive franchise to "Bin There Dump That" to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the terms and conditions described in the ordinance.		Omitted
18235	9- 2-2014	An Ordinance granting Special Permit No. PZST14-00016, to allow for Infill Development with a side yard setback and parking reduction on the property described as Lots 14 and 15, Block 48, Magoffin Addition, 708 South Hills Street, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 708 S. Hills Street. Property Owner: Mr. Cow Enterprises. PZST14-00016		Omitted
18236	9- 2-2014	An Ordinance granting Special Permit No. PZST14-00014, to allow for a parking lot (serving another property) on the property described as Lots 17-22, Block 129, Map of East El Paso Addition, 1515, 1517, 1519 Alta Street & 3620 Bisbee Avenue, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.260, 20.04.320, and 20.10.410 of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 1515, 1517, 1519 Alta Street & 3620 Bisbee Avenue. Property Owner: The Corporation of the Presiding Bishop of the Church of Jesus Christ of Latter-Day Saints. PZST14-00014		Omitted
18237	9- 2-2014	An Ordinance renewing the Special Privilege License granted to Navajo Refining Company by Ordinance No. 014032 and accepting the assignment to H E P Pipeline, LLC. for the maintenance, use and repair of the existing multi-product pipeline within portions of city right-of-way beneath Market Avenue just east of Eastside Street for a term of fifteen years with one renewable fifteen year term.		Omitted
18238	9- 2-2014	An Ordinance amending Title 20 (Zoning), Chapter 20.18 (Sign Regulations), Section 20.18.020 (Applicability) to exempt signs authorized through a franchise for waste containers located on sidewalks or other city property, the penalty being as provided in Chapter 20.24 of the El Paso City Code.	1	20.18.020 C.
18239	9- 2-2014	An Ordinance amending Title 9 (Health and Safety), Chapter 9.04 (Solid Waste Management), Section 9.04.020 (Definition) to add a definition for approved containers, and to amend section 9.04.260 (Accumulation and Storage), subsection 9.04.260A (Construction or Demolition Material) to allow for the accumulation and storage of construction materials and debris through additional means, the penalty being as provided in section 9.04.630 of the El Paso City Code.	1	9.04.020, 9.04.260.A
18240	9- 2-2014	An Ordinance changing the zoning of Lots 25 and 26, Block 17, Franklin Heights, 1217 Magoffin Avenue, City of El Paso, El Paso County, Texas from R-MU/sp (Residential Mixed-Use/special permit) to G-MU (General Mixed Use) and approving a Master Zoning Plan. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 1217 Magoffin Avenue. Property Owner: Federico Villalobos. PZRZ14-00021		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18241	9- 9-2014	An Ordinance amending Title 20 (Zoning), Chapter 20.02 (General Provisions and Definitions), to delete boarding house, group home, rooming house and transitional housing and add definitions for disabled group dwelling, group residential facility, homeless shelter, lodging house and emergency shelter; Chapter 20.08 (Appendix A), Table of Permissible Uses, Sections 3 and 13 - to delete transitional housing, boardinghouse, and rooming house, to allow homeless shelter by special permit in certain commercial and manufacturing districts, to allow emergency shelter by right in all apartment and commercial districts; to allow disabled group dwelling, assisted living facility, convalescent homes, intermediate care facility, nursing home, rest home and boarding home by right in residential, apartment, commercial, and certain special purpose districts, by detailed site plan in certain other special purpose districts and by master zoning plan in the residential mixed used district; and group residential facility, assisted living facility, convalescent home, intermediate care facility, nursing home, rest home, and boarding home by special permit in residential, by right in apartment, commercial, and certain special purpose districts, by detailed site plan in certain other special purpose districts and by master zoning plan in the residential mixed use district; to delete boarding home facility 4 residents or less and 5 residents or more, to allow a lodging house by right in apartment and commercial districts; Chapter 20.10 (Supplemental Use Regulations) to delete congregate home, amend the standards for boarding home facilities, add standards and regulations for disabled group dwelling; group residential facility, and homeless shelter; and (Appendix C) Table of Parking Requirements and Standards to delete transitional housing, boarding house, and rooming house, and to add standards for homeless shelter, emergency shelter, disabled group dwelling, and group residential facility, of the El Paso City Code. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.	1	20.02.526
			Added	20.02.295, 20.02.337, 20.02.455
			Rpld	20.02.136, 20.02.820, 20.02.1105
			2	20.08.030 C.
				Tit. 20, App. A
			3	20.10.115
			Added	20.10.175, 20.10.265, 20.10.275
			Rpld	20.10.150
			4	Tit. 20, App. C
18242	9-16-2014	An Ordinance changing the zoning of a Portion of Lot 1, Block 1, Miramonte Industrial Park Unit 1, Replat "A", City of El Paso, El Paso County, Texas from P-I/sc (Planned-Industrial/special contract) to C-4/sc (Commercial/special contract). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: West of Doniphan & South of Montoya. Property Owner: RDG-PDI Center, LLC. PZRZ13-00038.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18243	9-16-2014	An Ordinance changing the zoning of Tract 56, S.A. & M.G.R.R. Survey No. 267, 144 Thorn Avenue, City of El Paso, El Paso County, Texas from R-4 (Residential) to A-O (Apartment/Office). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 144 Thorn Avenue. Property Owner: Trans-American Communications, Inc. PZRZ14-00025.		Omitted
18244	9-16-2014	An Ordinance amending Title 20 (Zoning), Chapter 20.02 (General Provisions and Definitions) Creating a New Credit Access Business and Pawnshop use and definition, amending Chapter 20.10 (Supplemental Use Regulations) to add appropriate standards and regulations for Credit Access Businesses and amending Appendix A (Table of Permissible Uses) to allow Credit Access Businesses in Commercial districts by Special Permit and Appendix C (Parking Regulations) of the El Paso City Code. The Penalty is as provided for in Chapter 20.24 of the El Paso City Code.	1 Added	20.02.079
			Added	20.02.697
			2 Added	20.10.165
			3	Ch. 20, App. A
			4	Ch. 20, App. C
18245	9-16-2014	An ordinance amending Title 20 (Zoning), Chapter 20.02 (Definitions) to amend the definition of monument sign; Chapter 20.18 (Sign Regulations), Article II (Administration) Section 20.18.140 (Prohibited Signs) to remove the prohibition of roof signs and roof-mounted signs; Article IV (On-Premise Sign Regulations), Section 20.18.400 (General) to add administrative procedures for exceptions to sign standards; Section 20.18.440 (COP, C-1, P-C, P-I, R-MU, G-MU, and I-MU Districts) to amend the requirements for wall signs and to add perpendicular sign standards; Section 20.18.450 (C-2, C-3, C-4, Q, M-1, M-2 and M-3 Districts) to amend the definition of interstate or freeway frontage, to amend the requirements for wall signs, and to add roof and perpendicular sign standards; Section 20.18.455 (C-2, C-3, C-4, Q, M-1, M-2 and M-3 Districts) creating a new section to add requirements for shopping center sign plans; and 20.18.460 (C-5 District) to add roof sign standards. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.	1	20.02.922
			2 Rpld	20.18.140 E.
			Rnbd	20.18.140 F.—U.
			as	20.18.140 E.—T.
			3 Added	20.18.400 B.
			4	20.18.440 C.4.
			Added	20.18.440 D.
			5	20.18.450 A.2.
			6	20.18.450 D.3., D.4.
			Added	20.18.450 F., G.
			7 Added	20.18.455
			8 Added	20.18.460 G.

Ordinance Number	Approval Date	Description	Section	Section this Code
18246	9-16-2014	An Ordinance amending Title 15 (Public Services), Chapter 15.08. (Street Rentals), Section 15.08.120 (Special Privilege Licenses and Permits), to include a new type of encroachment for sidewalk retail vending in Table 1-1, and to add Subsection R (Sidewalk Retail Vending) to allow for and establish standards for sidewalk retail vending. Penalty is as provided in Section 15.08.125 of the El Paso City Code.		Omitted
18247	9-16-2014	An Ordinance amending paragraph 2 of Ordinance 017959 to read as follows: Use of Proceeds. The City shall use the net proceeds from the sale of the property municipally known and numbered as 800 S. Piedras aka 2914 E. Paisano for the design and construction of a roundabout at the intersection of Findley and S. Raynor Street in the area around Barrio Park.		Omitted
18248	9-23-2014	An Ordinance amending Title 20 (Zoning), Chapter 20.18 (Sign Regulations), Article III (Billboard Regulations), Section 20.18.270 (Relocation of certain billboards for a City Public Works Project or City or State Roadway Improvement Project) to amend the existing provisions in their entirety to allow for the relocation of existing nonconforming billboards. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.	1	20.18.270
18249	9-30-2014	An Ordinance changing the zoning of a portion of Tract 17B, Section 9, Block 81, Township 2, Texas and Pacific Railway Company Surveys, 8941 Dyer Street, City of El Paso, El Paso County, Texas from A-2 (Apartment) to C-3 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 8941 Dyer Street. Property Owner: EP Simana, L.P. PZRZ14-00028.		Omitted
18250	9-30-2014	An Ordinance vacating a portion of Cliff Drive Right-of-Way and a portion of Golden Hill Terrace Right-of-Way, adjacent to Lot 1, Block 1, City View Subdivision, City of El Paso, El Paso County, Texas.		Omitted
18251	9-30-2014	An Ordinance amending Title 13 (Streets, Sidewalks and Public Places), Chapter 13.20 (Miscellaneous Street and Sidewalk Use Regulations), to add Section 13.20.120 (Sidewalk Waste Container Franchises) to provide for the granting and administration of sidewalk waste container franchises; the penalty as provided in Chapter 1.08 of the City Code.	1 Added	13.20.120
18252	10- 7-2014	An Ordinance granting Special Permit No. PZST13-00025, to allow for a 55 percent parking reduction, on the property described as Lots 27-32, Block 118, Supplemental Map No. 1 of East El Paso Addition, 3500, 3504, and 3506 Pershing Drive, City of El Paso, El Paso County, Texas, pursuant to Sections 20.14.070, 20.04.150, and 20.04.320 of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 3500, 3504, and 3506 Pershing Drive. Property Owner: Faith United Methodist. PZST13-00025.		Omitted
18253	10- 7-2014	An Ordinance vacating a utility easement measuring 11.66 feet in width and 83.49 feet in length located within a portion of Lot 1, Block 1, North Desert Palms, City of El Paso, El Paso County, Texas.		Omitted
18254	10- 7-2014	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.150 (schedule XIV - Speed Limits) Paragraph F (Thirty-Five Miles per Hour), of the El Paso City Code, to add a new location on Ventana Avenue, the penalty being as provided in Chapter 1.08 (General Penalty) of the El Paso City Code.	1 Added	12.88.150 F.100

Ordinance Number	Approval Date	Description	Section	Section this Code
18255	10- 8-2014	An Ordinance amending Title 15 (Public Services), Chapter 15.08 (Street Rentals), Section 15.08.120 (Special Privilege Licenses and Permits), to replace the phrase "Trash Receptacles" with "Waste Containers"; the penalty as provided in section 15.08.125 of the El Paso City Code.	1	15.08.120 E., Tab. 1-1, 2.b.
			2	15.08.120 H.5.
			3	15.08.120 J.
18256	10- 7-2014	An Ordinance granting a non-exclusive franchise to Paul Berube for waste containers on sidewalks and other city property.		Omitted
18257	10-14-2014	An Ordinance changing the zoning of a portion of Lot 27, Block 123, Chaparral Park Subdivision Unit 33, 820 Redd Road, City of El Paso, El Paso County, Texas from A-O/c (Apartment/Office/condition) to C-1/c (Commercial/condition). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 820 Redd Road. Property Owner: George M. Dipp, Jr. PZRZ14-00027.		Omitted
18258	10-14-2014	An Ordinance approving a Detailed Site Development Plan for a portion of Lot 27, Block 123, Chaparral Park Subdivision Unit 33, 820 Redd Road, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.150. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 820 Redd Road. Applicant: George M. Dipp, Jr. PZDS14-00027.		Omitted
18259	10-21-2014	An Ordinance changing the zoning of a portion of Lot 14, Block 113, Eastwood Heights Unit V, Replat B, 10420 Montwood Drive & 10424 Brian Mooney Avenue, City of El Paso, El Paso County, Texas from A-O (Apartment-Office) to C-1 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 10420 Montwood Drive & 10424 Brian Mooney Avenue. Property Owner: Severo Hughston, LLC. PZRZ14-00040		Omitted
18260	10-21-2014	An Ordinance changing the zoning of the east 10 feet of Lot 5, all of Lots 6, 7, 8, 9 and the west 8 feet of Lot 10, Block 108, Supplemental Map No. 1 of East El Paso, 3411, 3415, and 3417 Montana Avenue, City of El Paso, El Paso County, Texas from R-5 (Residential) to S-D (Special Development). The penalty is as provided for in Chapter 20.24 of The El Paso City Code. Property Owner: Hector M. Ruiz and Sharon Vaughn, Location: 3411, 3415, and 3417 Montana Avenue, PZRZ14-00034		Omitted
18261	10-21-2014	An Ordinance approving a detailed site development plan and reduction of side setbacks for the east 10 feet of Lot 5, all of Lots 6, 7, 8, 9 and the west 8 feet of Lot 10, Block 108, Supplemental Map No. 1 of East El Paso, 3411, 3415 and 3417 Montana Avenue, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.150. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Applicant: Hector M. Ruiz and Sharon Vaughn, Location: 3411, 3415 and 3417 Montana Avenue, PZDS14-00025		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18262	10-21-2014	An Ordinance changing the zoning of the following parcels: Parcel 1: Portion of Lots 12 to 19, Block 9, Sunset Terrace Unit Four, an addition to the City of El Paso, El Paso County, Texas, and a portion of Lot 11, Block 9, Sunset Terrace Unit Four Replat "A", City of El Paso, El Paso County, Texas, from C-4/sc (Commercial/special contract) to R-3A/sc (Residential/special contract); and, Parcel 2: Portion of Lot 10, Block 9, Sunset Terrace Unit Four Replat "A", City of El Paso, El Paso County, Texas, from C-4/sc (Commercial/special contract) to R-3A/sc (Residential/special contract). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: West of Desert Boulevard and South of Bells Corner Avenue. Property Owner: Carefree Homes II, L.P. PZRZ14-00029		Omitted
18263	10-21-2014	An Ordinance changing the zoning of the west 5' of Lot 5, all of Lot 6 and the east 13' of Lot 7, Block 89, Bassett Addition, 2418 Montana Avenue, City of El Paso, El Paso County, Texas from A-2 (Apartment) to S-D (Special Development). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 2418 Montana Avenue. Property Owner: AIC Global, LLC. PZRZ14-00004		Omitted
18264	10-21-2014	An Ordinance changing the zoning of Lots 1 - 3, Block 1, Duenas Subdivision, 5301, 5305, & 5309 Ridge Street, City of El Paso, El Paso County, Texas from R-5 (Residential) to S-D (Special Development). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 5301, 5305, & 5309 Ridge Street. Property Owner: Ricardo Benavente. PZRZ14-00018		Omitted
18265	10-21-2014	An Ordinance changing the zoning of Lot 1, Block 1, Loyas Place Subdivision, 320 Thorn Avenue, City of El Paso, El Paso County, Texas from R-3 (Residential) to R-5 (Residential). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 320 Thorn Avenue. Property Owner: David A. Aber PZRZ14-00036		Omitted
18266	10-21-2014	An Ordinance approving a detailed site development plan for Lots 52-57, Block 1, Barcelona Estates, 12253 Costa Brava, to allow for reduced front, rear and side yard setback, City of El Paso, El Paso County, Texas, Pursuant to Sections 20.10.360 and 20.04.150. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 12253 Costa Brava. Property Owner: Omar & Adriana Galache. PZDS13-00021		Omitted
18267	10-21-2014	An Ordinance vacating a drainage easement described as the platted 5' drainage easement lying in Lot 13, Block 4, San Clemente Unit 2, City of El Paso, El Paso County, Texas.		Omitted
18268	10-21-2014	An Ordinance amending Title 20 (Zoning), Chapter 20.02 (Definitions) to amend the definition of shopping center. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.	1	20.02.862
18269	10-21-2014	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.030 (Schedule III - Parking Prohibited At All Times On Certain Streets) Paragraph 354 (Sun Bowl Drive), to amend the No Parking Locations on Sun Bowl Drive, the penalty being as provided in Chapter 12.84.010 and Chapter 12.85 of the El Paso City Code.	1	12.88.030

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18270	11- 4-2014	An Ordinance changing the zoning of Lot 24, Block 1, Alta-Mira Addition, 1200 Chelsea Street, City of El Paso, El Paso County, Texas from R-4 (Residential) to A-O (Apartment-Office), and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 1200 Chelsea Street. Property Owner: Nicolaus Maass & Jung Ku. PZRZ14-00035		Omitted
18271	11- 4-2014	An Ordinance changing the zoning of the Southerly 140 feet of blocks 201 and 202 and the vacated alley and street between, Campbell Addition, 216. S. Ochoa Street and 811-813 E. First Avenue, City of El Paso, El Paso County, Texas from M-1 (Manufacturing) and M-1/sp (Manufacturing/special permit) to C-4 (Commercial), and repealing Ordinance No. 012649 granting Special Permit No. SP-95 permitting the off-street parking of 301 S. Ochoa to be satisfied onsite. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 216 S. Ochoa Street and 811 - 813 First Avenue. Property Owner: BLK Investments 2 Family Limited Partnership. PZRZ14-00030		Omitted
18272	11- 4-2014	An Ordinance changing the zoning of a portion of Tract 4C, (Also known as Tract 4C2 and 4C1A), Block 52, Ysleta Grant, 9850 Socorro Road, City of El Paso, El Paso County, Texas from A-2/sc (Apartment/special contract) and A-2/H/sc (Apartment/Historic/special contract) to C-1/sc (Commercial/special contract) and C-1/H/sc (Commercial/Historic/ special contract). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 9850 Socorro Road. Property Owner: James R. Gonzalez. PZRZ14-00039		Omitted
18273	11- 4-2014	An Ordinance granting Special Permit No. PZST14-00020, to allow for Infill Development with reduced lot size, rear yard setback, and cumulative front and rear yard setbacks on the property described as Lot 4, Block 29, Colonia Del Valle Unit Two, 9325 Milpas Lane, City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 9325 Milpas Lane. Property Owner: Jessica Nuno. PZST14-00020		Omitted
18274	11- 4-2014	An Ordinance repealing Ordinance No. 017678 dated November 29, 2011 which granted a Special Privilege License to J.D. Abrams, LP for the construction, installation, maintenance, and repair of a 380 linear foot subsurface HMAC TY C Temporary Water Line within portions of City right-of-way beneath Flower Drive between Francis Street and Modesto Gomez Park and a portion of Modesto Gomez Park and between Flower Drive and Highway Loop 375 (Cesar Chavez Highway) for a term of five years with one renewable five year term, thereby terminating the Special Privilege License.		Omitted
18275	11- 4-2014	An Ordinance vacating a 0.0578 acre portion of drainage right-of-way, legally described as a portion of Lot 1A, Block 1, Desert Aire Park Replat A, City of El Paso, El Paso County, Texas and adjacent to Lot 4, Block 1, Desert Aire Park Replat A, City of El Paso, El Paso County, Texas.		Omitted
18276	11- 4-2014	An Ordinance authorizing the City Manager to sign a Contract of Sale and a Special Warranty Deed conveying a 1.17 acre parcel of land being described as Lots 16 & 17 and Lots 23-28, Hill Terrace Addition, City Of El Paso, El Paso County, Texas, and any other documents necessary to complete the sale to ANVIA L.L.C.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18277	11-11-2014	An Ordinance repealing Ordinance No. 017658 dated October 18, 2011 which granted a Special Privilege License to J.D. Abrams, LP for the construction, installation, maintenance, and repair of a 115 linear foot subsurface HMAC TY C Temporary Water Line within portions of City right-of-way beneath George Orr Road between Ben Swain Drive and Highway Loop 375 (Cesar Chavez Highway) for a term of five years with one renewable five year term, thereby terminating the Special Privilege License.		Omitted
18278	11-11-2014	An Ordinance changing the zoning of a portion of Lot 8, Block 6, Maria Seanes Estates, Unit 1, being a portion of Section 8, Block 79, Township 3, Texas and Pacific Railroad Surveys, 1614 Jose Bombach Drive, City of El Paso, El Paso County, Texas from R-3A/c/sp (Residential/condition/special permit) to C-1 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 1614 Jose Bombach. Property Owner: Tepabe Properties, LLC. PZRZ14-00024		Omitted
18279	11-11-2014	An Ordinance releasing all conditions placed on the property by Ordinance No. 8054 and Ordinance No. 14578, and imposing conditions, on the following real property: Parcel 1: Portion of Lot 8, Block 6, Maria Seanes Estates, Unit 1, being a portion of Section 8, Block 79, Township 3, Texas and Pacific Railroad Surveys, 1614 Jose Bombach Drive, City of El Paso, El Paso County, Texas; and, Parcel 2: Portion of Lot 8, Block 6, Maria Seanes Estates, Unit 1, being a portion of Section 8, Block 79, Township 3, Texas and Pacific Railroad Surveys, 1614 Jose Bombach Drive, City of El Paso, El Paso County, Texas; and, Parcel 3: Portion of Lot 8, Block 6, Maria Seanes Estates, Unit 1, being a portion of Section 8, Block 79, Township 3, Texas and Pacific Railroad Surveys, 1614 Jose Bombach Drive, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 1614 Jose Bombach Drive. Property Owner: Tepabe Properties, LLC. PZCR14-00005		Omitted
18280	11-11-2014	An ordinance authorizing the City Manager to sign a purchase agreement with MCA Tech Park In. and MCA Revere Realty, Inc. for the sale of Lot 1A, Clock 1, Colfax MCA Addition Replat "A", an addition to the City of El Paso, El Paso County, Texas and a portion of Lot 1, Block 1, Colfax MCA Addition, an addition to the City of El Paso, El Paso County, Texas.		Omitted
18281	11-18-2014	An Ordinance granting Special Permit No. PZST14-00022, to allow for Infill Development with reduced lot size and lot width on the property described as Lot 10, Block A, Patterson Subdivision, 133 Keeney Court, City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 133 Keeney Court. Property Owner: Edge Construction. PZST14-00022		Omitted
18282	11-18-2014	An Ordinance granting a Special Privilege License to Eduardo and Josephina A. Soto for the construction, use, maintenance, and repair of 40 balconies and 4 signs creating aerial encroachments over the portions of City right-of-way along Campbell Street adjacent to the property located at 501 South Campbell Street, El Paso, Texas.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18283	12-2-2014	An Ordinance authorizing the issuance of "City of El Paso, Texas, Water and Sewer Revenue Refunding Bonds, Series 2015," and resolve matters which are necessary to effectuate said issuance, including a delegation of authority.		Omitted
18284	12- 2-2014	An Ordinance granting Special Permit No. PZST14-00026, to allow for Infill Development with reduced side yard setback on the property described as Lot 48 and a portion of Lot 49, Block 6, Stiles Gardens, 7207 Dale Road, City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 7207 Dale Road. Property Owner: Debbie Martinez. PZST14-00026		Omitted
18285	12- 9-2014	An Ordinance releasing all conditions placed on property by Resolution approved on October 23, 1956 which changed the zoning of a portion of Lots 21 and 26 and all of Lots 22 through 25, Block 9, Eastside Industrial District Unit One, 6966 Market Avenue, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 6966 Market Avenue. Property Owner: HW McKinney Jr. Wrecking, Inc. PZCR14-00006		Omitted
18286	12- 9-2014	An Ordinance designating a certain contiguous geographic area in the City of El Paso, Texas as a tax increment reinvestment zone; describing the boundaries of the zone; providing for an effective date and a termination date for the zone; naming the zone, "Reinvestment Zone Number Seven, City of El Paso, Texas"; creating a board of directors; establishing a tax increment fund; and containing other provisions related thereto.		Omitted
18287	12- 9-2014	An Ordinance granting a Special Privilege License to the Central Business Association of El Paso, Inc., to permit sidewalk retail vending by participating merchants within certain public rights-of-way in downtown El Paso for a term of five years with two renewable five year terms. NESV14-00015		Omitted
18288	12-16-2014	An Ordinance changing the zoning of Tract 3-A, a portion of Tract 4A, all of Tract 4-E and 4-E-1, Block 39, Ysleta Grant, 133, 139, and 153 Snelson Drive, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) and R-4 (Residential) to C-1 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 133, 139, 153 Snelson Drive. Property Owner: Rosa Padilla. PZRZ14-00037		Omitted
18289	12-16-2014	An Ordinance amending Title 20 (Zoning), Chapter 20.12 Density and Dimensional Standards; Section 20.12.020 Table of Density and Dimensional Standards, Appendix B of the El Paso City Code, to amend the minimum district area for Residential, General, and Industrial Mixed Use Districts. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.	1	20.12.020.App. B, JJ, KK, LL
18290	12-16-2014	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.030 (Schedule III - Parking Prohibited At All Times On Certain Streets), Paragraph 379 (Weston Brent Lane), to amend the No Parking locations on Weston Brent Lane, the penalty being as provided in Section 12.84.010 and Chapter 12.85 of the El Paso City Code.	1	12.88.030.379

Ordinance Number	Approval Date	Description	Section	Section this Code
18291	12-16-2014	An Ordinance releasing all conditions placed on Parcel 1 by Ordinance No. 5714 which changed the zoning of Tracts 1A and 1C, A.F. Miller Survey No. 211 and Tracts 15J, 15J1A, and 15J1B, A.F. Miller Survey No. 213, 6927 North Mesa Street, City of El Paso, El Paso County, Texas and On Parcel 2 by Ordinance No. 6206 which change the zoning of Tracts 1B, A.F. Miller Survey No. 211, and Tracts 15H and 15T, A.F. Miller Survey No. 213, 6851 and 6801 North Mesa Street, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 6927, 6851, and 6801 N. Mesa Street. Property Owner: CSM Realty Holdings, LTD. PZCR14-00008		Omitted
18292	12-16-2014	An Ordinance changing the zoning of Tracts 1A and 1C, A.F. Miller Survey No. 211 and Tracts 15J, 15J1A, and 15J1B, A.F. Miller Survey No. 213, 6927 North Mesa Street, City of El Paso, El Paso County, Texas from C-1/sc (Commercial/special contract) to C-3 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 6927 North Mesa Street. Property Owner: CSM Realty Holdings, LTD. PZRZ14-00048 Richarda Duffy Momsen, City Clerk		Omitted
18293	12-30-2014	An Ordinance extending until December 31, 2016, a non-exclusive franchise to "American Disposal Service" to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the terms and conditions described in the ordinance.		Omitted
18294	12-30-2014	An Ordinance extending until December 31, 2016, a non-exclusive franchise to "Cemex Construction Materials South, LLC" to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the terms and conditions described in the ordinance.		Omitted
18295	12-30-2014	An Ordinance extending until December 31, 2016, a non-exclusive franchise to "El Paso Disposal, LP" to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the terms and conditions described in the ordinance.		Omitted
18296	12-30-2014	An Ordinance extending until December 31, 2016, a non-exclusive franchise to "Heist Disposal, Inc." to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the terms and conditions described in the ordinance.		Omitted
18297	12-30-2014	An Ordinance extending until December 31, 2016, a non-exclusive franchise to "Jose Roman Gonzalez, Jr. DBA JRG Disposal Service" to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the terms and conditions described in the ordinance.		Omitted
18298	12-30-2014	An Ordinance extending until December 31, 2016, a non-exclusive franchise to "Moore Service, Inc." to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the terms and conditions described in the ordinance.		Omitted
18299	12-30-2014	An Ordinance extending until December 31, 2016, a non-exclusive franchise to "Sandoval Capital, Inc. DBA Bronco Disposal" to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the terms and conditions described in the ordinance.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18300	12-30-2014	An Ordinance granting Special Permit No. PZST14-00028, to allow for infill development with a reduction in lot area and width and a 50% parking reduction on the property described as Lot 226, Singh Addition Third Section, 634 Casa Grande Place, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 634 Casa Grande Place. Property Owner: Juan Alderete, Jr. PZST14-00028		Omitted
18301	12-30-2014	An Ordinance changing the zoning of Tract 19-B, Block 48, Ysleta Grant, 9255 Socorro Road, City of El Paso, El Paso County, Texas from R-4 (Residential) and R-4/H (Residential/historic) to A-O (Apartment-Office) and A-O/H (Apartment-Office/historic). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 9255 Socorro Road. Property Owner: Jose Luis Anguiano. PZRZ14-00046		Omitted
18302	1- 6-2015	An Ordinance amending the Final Project Plan and Final Reinvestment Zone Financing Plan for the Tax Increment Reinvestment Zone Number Five, City of El Paso, Texas; Adopting said amendments as required by Section 311.011(E) Texas tax code; also providing a severability clause.		Omitted
18303	1-13-2015	An Ordinance granting a Special Privilege License to Lampshade Coco, LLC for the construction, installation, maintenance, use and repair of an elevator within certain portions of City right-of-way along the Durango Service Road adjacent to the property located at 500 West San Francisco Avenue, El Paso, Texas for a term of twenty years with one renewable twenty year term.		Omitted
18304	1-13-2015	An Ordinance changing the zoning of all of Tracts 6B and 6G, Block 22, Ysleta Grant, 7063 Alameda Avenue, City of El Paso, El Paso County, Texas from C-3 (Commercial) to I-MU (Industrial Mixed Use), approving a Master Zoning Plan and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Applicant: Francisco and Remedios Ramirez, Location: 7063 Alameda Avenue, PZRZ14-00044 Note: This is an appeal request.		Omitted
18305	1-20-2015	An Ordinance approving a detailed site development plan for Lots 1-9, 13, 16-18, 25-29, 31-36, 39-42, 50-51, 59, 64-68, 81-86, and 88, Block 1, Barcelona Estates Replat "A", City of El Paso, El Paso County, Texas, to allow for the reduction of all lot requirements and setbacks, and imposing a condition, Pursuant to Sections 20.10.360 and 20.04.150. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: North of Zaragoza Road and East of Joe Battle Boulevard. Property Owner: Laguna Meadows, LP., Mountain Vista Builders, Inc., RAKUSA Construction, LLC, William D. Thomas, William L. and Deanne Isaac, Thomas Dula, Ray W. and Carole Williams, and Harvey D. Joseph. PZDS14-00031		Omitted
18306	1-20-2015	An Ordinance annexing the following real property described as Tract 1C, Section 39, Block 79, Township 2, Texas and Pacific Railway Company Surveys and a portion of Zaragoza Road (F.M. 659), El Paso County, Texas. Subject Property: West of Zaragoza at Pebble Hills; Property Owners: Tomly Corporation, Inc. SUAX13-00002 (Adjacent to District 5)		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18307	1-20-2015	An Ordinance changing the zoning of Tract 1C, Section 39, Block 79, Township 2, Texas and Pacific Company Surveys, El Paso County, Texas and a portion of Zaragoza Road from R-F (Ranch and Farm) to C-3/c (Commercial/conditions), and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: West of Zaragoza Road at Pebble Hills Boulevard. Property Owner: Tomly Corporation. PZRZ13-00039		Omitted
18308	1-20-2015	An Ordinance renewing the Special Privilege License granted to El Paso 221, L.P. by Ordinance No. 014526 and later assigned to Madison River Investments, LLC, by Ordinance No. 016963 for the maintenance and use of an existing underground tunnel encroaching within a portion of Kansas Street between Mills Avenue and Texas Avenue for a second term of fifteen years and amending the assignment provision to allow for transfer of obligations to another party through a lender. Applicant: Madison River Investments, LLC.		Omitted
18309	1-20-2015	An Ordinance amending Title 19 (Subdivision and Development Plats), Section 19.08.020 (Timing of Public Improvements, Permit Issuance), the Penalty being as provided in Chapter 19.42 of the City of El Paso City Code.	1	19.08.020.D.2
18310	1-20-2015	An Ordinance amending Ordinance 8065 (Civil Service Rules And Regulations), to amend a Section of Rule No. 1 to comport with Charter Amendments relating to Election of Civil Service Officers; to amend a Section of Rule No. 6 to clarify the intent of Sick Leave Verification Requirements; to amend a Section of Rule 8 to clarify the Application of Formal Counselings in Progressive Discipline; and to amend a portion of Rule No. 8 and Rule No. 10 to comport with legislative amendments to Chapter 150 of the Local Government Code relating to Municipal Employees as Candidates for Public Office.		Omitted
18311	1-27-2015	An Ordinance amending the Master Zoning Plan approved on October 30, 2012, by Ordinance No. 17895 for the rezoning to General Mixed Use (GMU) of Lots 1 through 20 and 16 foot alley, Block 209, Alexander Addition, 2501 & 2525 N. Mesa Street and 2508 Oregon Street, City of El Paso, El Paso County, Texas, and the northwesterly half of that vacated portion of Boston Street. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 2501 & 2525 N. Mesa Street and 2508 Oregon Street. Property Owner: EP Marcus Investments, L.P. and EP Del Mesa Partners, L.P. PZRZ14-00019 [POSTPONED FROM 01-20-2015]		Omitted
18312	2-17-2015	An Ordinance authorizing the City Manager to sign a Contract of Sale and a Special Warranty Deed conveying a 0.7659 acre parcel of land being a portion of Section 17, Block 81, Township 2, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas, and any other documents necessary to complete the sale to Jobe Materials, L.P.		Omitted
18313	2-17-2015	An Ordinance granting Special Permit No. PZST14-00032, to allow for a ground-mounted 55' Personal Wireless Service Facility on the property described as Lot 1, Block 1, Delta Subdivision, 314 S. Glenwood Street, City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.455 of El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 314 S. Glenwood Street. Property Owner: El Divino Salvadore Presbyterian Church, Inc. PZST14-00032		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18314	2-17-2015	An Ordinance granting Special Permit No. PZST14-00033, to allow for infill development with reduced side street yard setbacks and reduced parking on the property described as Lots 1 - 8, Block 10, Military Heights, 2901, 2909, and 2915 Fort Boulevard, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 2901, 2909, and 2915 Fort Boulevard. Property Owner: Margarita T. Ochoa PZST14-00033		Omitted
18315	2-17-2015	An Ordinance granting Special Permit No. PZST15-00001, to allow for Infill Development with reduced rear yard setback and cumulative front and rear yard setbacks on the property described as Lot 5, Block 15, Mesquite Trails #3, 1340 Fito Hernandez Street, City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 1340 Fito Hernandez Street. Property Owner: Miguel and Cecilia Ortiz. PZST15-00001		Omitted
18316	2-17-2015	An Ordinance annexing the following real property described as a portion of Tract 1D, Section 39, Block 79, Township 2, Texas and Pacific Railroad Company Surveys, El Paso County, Texas. Subject Property: West of Zaragoza and north of Pebble Hills; Property Owners: City of El Paso. SUAX13-00001		Omitted
18317	2-24-2015	Authorizing the Issuance of Municipal Drainage Utility System Revenue Bonds, Series 2015		Omitted
18318	3- 3-2015	To Allow For Infill Development With a Lot Width and Area Reduction, Side Yard Setback Reduction and a 50% Parking Reduction On The Property Described as Parcel 1: Lot 3, Block 1, Hughes Subdivision Replat		Omitted
18319	3- 3-2015	To Change the Zoning of the North ½ of Lot 6 and All of Lots 7, 8, 9 and 10, Block 45, Alexander Addition		Omitted
18320	3- 3-2015	Approving a Detailed Site Development Plan For a Portion of Lot 1, Block 1, Le Barron Park Subdivision		Omitted
18321	3- 3-2015	Annexing a Portion of Section 2, Block 79, Township 3, Texas and Pacific Railroad Company		Omitted
18322	3- 3-2015	Changing the Zoning of Parcels 1—3, Texas and Pacific Railway Company		Omitted
18323		PENDING		
18324	3-17-2015	Changing the Zoning of a Portion of Tract 6C, Section 16 and Portions of Tracts 1D and 1E, Section 17, Block 80, Township 1, Texas and Pacific Railroad		Omitted
18325	3-17-2015	Changing the Zoning of the South 50 Feet of the North 85 Feet of Lot 3, Block 16A, Scotsdale Unit 2A, 3358 Wedgewood Drive		Omitted
18326	3-17-2015	Changing the Zoning of Lots 15 and 16, Block 21, Highland Park Subdivision		Omitted
18327	3-24-2015	Granting El Paso Bench Ads		Omitted
18328	3-31-2015	Granting Special Permit No. PZST14-00036 to Allow For Infill Development with a Rear Yard Setback Reduction, 50% Density Bonus and a 50% Parking Reduction—Lot 2, Block 1, Cudahy-Locke Subdivision		Omitted
18329	3-31-2015	Changing the Zoning of a Portion of Lots 1 and 2 of Block 1, Cudahy-Locke Subdivision		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18330	3-31-2015	Granting Special Permit No. PZST14-00029 to Allow For Infill Development With Reduced Side Yard Setback and Parking Reduction on Property Described as Lots 3 and 4, Block 40, Bassett Addition		Omitted
18331	3-31-2015	Amending the Boundaries of the Downtown 2015 Plan		Omitted
18332	4- 7-2015	Granting a Special Permit for a 44% Parking Reduction on Property Described as a Portion of Lot 1, Block 2, Yarborough Village		Omitted
18333	4- 7-2015	Vacating a Portion of Cebada Street, Missouri Avenue, Luna Street and all of 20 foot Alley Between Missouri Avenue and Gateway West Boulevard		Omitted
18334	4- 7-2015	An Ordinance amending Ch. 18.02 (Design Professional) to Exclude Group R-3 Occupancy Construction Documents from Design Professional Seal Requirements	1	18.02.105.9
18335	4-14-2015	To Allow for Infill Development With a Reduction in Lot Width and Depth, and a Reduction in Front, Rear, Side, Cumulative Front and Rear, and Cumulative Side and Side Street Setbacks—Tract 3A2, Block 3, Upper Valley Surveys		Omitted
18336	4-14-2015	Changing the Zoning of Lots 16 to 30, Block 14, Hughes Addition		Omitted
18337	4-14-2015	Changing the Zoning of the Southerly 96.00 Feet of the Easterly 98.00 Feet of Lot 272, Map of Sunrise Acres		Omitted
18338	4-14-2015	To Allow for Infill Development With a Lot Width Reduction, Front, Rear, and Cumulative Yard Setback Reductions and a 25% Parking Reduction On Property Described as a Portion of Lot 13, Block 22, Clardy-Fox Subdivision		Omitted
18339	4-14-2015	Granting a Franchise Extension and Modification For Life Ambulance Service Inc.		Omitted
18340	4-14-2015	Granting a Franchise Extension and Modification for Dominion Ambulance, LLC		Omitted
18341	4-14-2015	Granting a Franchise Extension and Modification for Elite Medical Transport of Texas LLC D/B/A Elite Medical Transport to Operate a non-emergency Ambulance Transport Service		Omitted
18342	4-14-2015	Amending Ch. 18.08 (Building Code) For the Sole Purpose of Improving Accessibility	1 Added	18.08.221
			2 Added	18.08.222
18343	4-14-2015	Vacating a Portion of a 16 Foot Alley Adjacent to Lots 10 and 11, Block 209, Alexander Addition		Omitted
18344	4-21-2015	Changing the Zoning of Tracts 4A and 4C, Block 33, Ysleta Grant, 8235 Carpenter Drive		Omitted
18345	4-21-2015	An Ordinance amending Title 12, Ch. 12.88, Schedule XVII—Restrictions on Parking in Residential Districts—Zone K	1	12.88.200
18346	4-21-2015	Authorizing the Sale to the Rescue Mission of El Paso Inc.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18347	4-28-2015	An Ordinance granting Special Permit No. PZST15-00005 to allow for infill development with a reduction in rear and side street yard setbacks, as well as a 50 percent parking reduction, on the property described as Lots 4 through 8, Block 13, Sunset Heights, 617 W. Franklin Avenue, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 617 W. Franklin Avenue. Property Owner: The City of El Paso. PZST15-00005		Omitted
18348	4-28-2015	Amendment to Title 19 to allow a refund of certain park fees: An Ordinance amending Title 19 (Subdivision and Development Plats), Chapter 19.20 (Parks and Open Space), Section 19.20.110 (Fee in Lieu of Parkland Dedication), and Section 19.20.120 (Parkland Fees Special Fund) of the City Code of El Paso to permit a refund of fees in lieu of parkland dedication when the development in accordance with the plat is abandoned and the property is conveyed to the City for use as public open space	1	19.20.110.D
			2 Added	19.20.120.D
18349	4-28-2015	An Ordinance amending Title 20 (Zoning), Chapter 20.10 (Supplemental Use Regulations), to amend Section 20.10.695, Transfer of Development Rights, by amending the section to allow a second type of transfer of development rights for the transfer of a vested project from one parcel of land to another; providing for conditions applicable to such approval; amending Section 20.08.030 (Permissible Uses) Appendix "A" Table of Permissible Uses to allow the transfer of development rights in the M-1 Zoning District. The penalty is as provided for in Chapter 20.24 of the El Paso City Code	1	20.10.695.A.1, 3, 4
			2	20.10.695.B
			3	20.10.695.C
			4	20.10.695.D
			5	20.10.695.E
			Added	20.10.695.F
			6	20.08.030, App. A
18350	5- 5-2015	An Ordinance vacating a portion of Cebada Street out of East El Paso Addition, City of El Paso, El Paso County, Texas. Subject Property: South of Gateway East and west of Luna; Property Owner: El Paso Water Utilities. SURW15-00003		Omitted
18351	5- 5-2015	Amending Title 12, Ch. 12.88 Schedule XVII—Restrictions on Parking in Residential Districts—Zone K	1	12.88.200
18352	5-12-2015	An Ordinance changing the zoning of a portion of Lot 15 and all of Lot 16, Block 266, Campbell Addition, City of El Paso, El Paso County, Texas, and Lots 11 through 12, Block 266, Campbell Addition, 400 Rio Grande Avenue and 405 Montana Avenue, City of El Paso, El Paso County, Texas from A-2 (Apartment) to C-1 (Commercial), and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 400 Rio Grande Avenue and 405 Montana Avenue. Property Owner: ASLM, LTD. PZRZ14-00038		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18353	5-12-2015	An Ordinance granting Special Permit No. PZST14-00027, to allow for off-street parking serving another property, on the property described as Lots 1 through 10, Block 266, Campbell Addition, City of El Paso, El Paso County Texas; Lots 17 through 20, Block 266, Campbell Addition, City of El Paso, El Paso County, Texas; a portion of Lot 15 and all of Lot 16, Block 266 Campbell Addition, City of El Paso, El Paso County, Texas, and Lots 11 through 12, Block 266, Campbell Addition, City of El Paso, El Paso County, Texas, 400 Rio Grande Avenue, 416 Rio Grande Avenue, 405 Montana Avenue and 415 Montana Avenue Pursuant to section 20.10.410, off street parking serving another property of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 400 Rio Grande Avenue, 416 Rio Grande Avenue, 405 Montana Avenue and 415 Montana Avenue. Property Owner: ASLM, LTD. PZST14-00027		Omitted
18354	5-12-2015	An Ordinance releasing all conditions placed on Parcel 1 by Ordinance No. 14596 and 16499 which changed the zoning of Lot 1, Block 1, Medano Heights Replat A, 5720 Desert North Boulevard, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 5720 Desert North Boulevard. Property Owner: E.P. Summit Investments, L.P. PZCR15-00001		Omitted
18355	5-12-2015	An Ordinance changing the zoning of Lot 27, Block B, Pioneer Subdivision, 6550 Mohair Drive, City of El Paso, El Paso County, Texas from R-4/SP (Residential/Special Permit) to R-4 (Residential). The penalty is as provided in Chapter 20.24 of the El Paso City Code. Applicant: The City of El Paso, Location: 6550 Mohair Drive PZRZ14-00045		Omitted
18356	5-12-2015	An ordinance authorizing the City Manager to sign a Contract of Sale and a Special Warranty Deed conveying a 0.35 acre parcel of land being described as Lot 14, Block 3, Country Place Unit Two, City of El Paso, El Paso County, Texas, and any other documents necessary to complete the sale to Arturo Ambriz Rodriguez and Yessica Ambriz. Subject Property: 500 Country Oaks		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18357	5-19-2015	An Ordinance changing the zoning of the following real property known as: Parcel 1: 1830 Olive Avenue, Lot 1 and East 13 Feet of Lot 2, Block 19, Bassett Addition, City of El Paso, El Paso County, Texas; and, Parcel 2: 1822 Olive Avenue, Lot 3 and West 12 Feet of Lot 2, Block 19, Bassett Addition, City of El Paso, El Paso County, Texas; and, Parcel 3: 1816 Olive Avenue, Lot 4, Block 19, Bassett Addition, City of El Paso, El Paso County, Texas; and, Parcel 4: 1812 Olive Avenue, Lot 5, Block 19, Bassett Addition, City of El Paso, El Paso County, Texas; and, Parcel 5: 1806 Olive Avenue, Lot 6, Block 19, Bassett Addition, City of El Paso, El Paso County, Texas; and, Parcel 6: 1804 Olive Avenue, Lots 7 and 8, Block 19, Bassett Addition, City of El Paso, El Paso County, Texas; and, Parcel 7: 1802½ Olive Avenue, A Portion of Lots 9 and 10, Bassett Addition, City of El Paso, El Paso County, Texas; and, Parcel 8: 1802 Olive Avenue, A Portion of Lots 11, 12 and 13, Block 19, Bassett Addition, City of El Paso, El Paso County, Texas; and, Parcel 9: 1805 East San Antonio Avenue, A Portion of Lots 17 and 18, Block 19, Bassett Addition, City of El Paso, El Paso County, Texas; and, Parcel 10: 1807 East San Antonio Avenue, A Portion of Lots 19 and 20, Block 19, Bassett Addition, City of El Paso, El Paso County, Texas; and, Parcel 11: 1809 East San Antonio Avenue, Lot 21, Block 19, Bassett Addition, City of El Paso, El Paso County, Texas; and, Parcel 12: 1811 East San Antonio Avenue, Lot 22, Block 19, Bassett Addition, City of El Paso, El Paso County, Texas; and, Parcel 13: 1813 East San Antonio Avenue, Lots 23 and 24, Block 19, Bassett Addition, City of El Paso, El Paso County, Texas; and, Parcel 14: 1819 East San Antonio Avenue, Lots 25 and 26, Block 19, Bassett Addition, City of El Paso, El Paso County, Texas; and, Parcel 15: 1823 East San Antonio Avenue, Lot 27, Block 19, Bassett Addition, City of El Paso, El Paso County, Texas; and, Parcel 16: 1825 East San Antonio Avenue, Lot 28, Block 19, Bassett Addition, City of El Paso, El Paso County, Texas; and, Parcel 17: 1831 East San Antonio Avenue, Lots 29 and 30, Block 19, Bassett Addition, City of El Paso, El Paso County, Texas; and, Parcel 18: 429 South Laurel Street, Lots 31 and 32, Block 19, Bassett Addition, City Of El Paso, El Paso County, Texas from M-1 (Manufacturing) to RMU (Residential-Mixed Use) and approving a master zoning plan. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. PZRZ14-00056		Omitted
18358	5-19-2015	An Ordinance changing the zoning of Lots 1 and 2, Block 86, East El Paso Addition, 810 N. Luna Street, City of El Paso, El Paso County, Texas from R-5 (Residential) to S-D (Special Development). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 810 N Luna. Property Owner: Marco A. Chavira. PZRZ15-00006		Omitted
18359	5-26-2015	Amending Ord. No. 12476 and 14981 to Approve the Use of the User Agreement for Foreign Trade Zone No. 68		Omitted
18360	6- 2-2015	Changing the Zoning of a Portion of Section 28 and 33, Block 79, Township 2, Texas and Pacific Railway Company		Omitted
18361	6- 2-2015	To Allow for a Volleyball Club Outdoor With Restaurant on the Property Described as Tract 8B1, Block 11, Upper Valley Surveys		Omitted
18362	6- 2-2015	An Ordinance amending Ch. 20.18 (Billboard Regulations) by Reorganizing Existing Standards and Add New Standards and Regulations for Relocation of Certain Billboards	1	20.18.270

Ordinance Number	Approval Date	Description	Section	Section this Code
			2 Added	20.18.280
18363	6- 2-2015	Amending Title 12, Ch. 12.88 Schedule XVII—Restrictions on Parking in Residential Districts—Zone K	1	12.88.200
18364	6- 2-2015	Amending Title 12, Ch. 12.88, Schedule IVA—Parking Prohibited During Certain Hours—School Days Only	1	12.88.041.A.3
18365	6- 2-2015	Amending Title 12, Ch. 12.88, Schedule IVA—Parking Prohibited During Certain Hours—School Days Only	1	12.88.200
18366	6- 2-2015	An Ordinance amending Ch. 18.18, to Add an Exception for Upward Directed Sign Lighting for Off Premise Signs (Outdoor Lighting Code) and to Provide for an Exception For Upward Directed Sign Lighting (Externally Illuminated Sign Standards)	1	18.18.310,
				18.18.120
18367	6- 9-2015	Amending the Future Land Use Map Contained in "Plan El Paso"		Omitted
18368	6- 9-2015	Changing the Zoning of Portions of Tracts 7A, 8C, 9 and 10, Block 55, Ysleta Grant Surveys		Omitted
18369	6- 9-2015	An Ordinance amending Ch. 13.24 (City Parks and Recreation Areas) to Authorize the Director of Parks and Recreation to Extend Hours of Operation	1	13.24.040
18370	6-16-2015	An Ordinance amending Title 3 by adding Ch. 3.46 (Wage Theft) in Order to set Procedure for Wage Theft Complaints Related to City and Non-city Contacts; Providing for the Creation of a Wage Theft Adjudication Database	1 Added	Ch. 3.46, 3.46.010—3.46.060
18371	6-16-2015	An Ordinance amending Ch. 20.08 (Permissible Uses) to Allow Heavy Truck Sales, Ch. 20.10 (Supplemental Use Regulations) and Ch. 20.14 (Off-Street Parking, Loading and Storage Standards)	1	20.08.030, App. A, 8.15,
				20.08.030, App. A, 11.04
				20.08.030, App. A, 11.44
			2	20.10.680.C.3
			3 Added	20.14.050, App. C, 16.025
				20.14.050, App. C, 16.11.5
18372	6-16-2015	Changing the Zoning Lots 18—20, Block 4, Eastside Industrial District Unit One, 1010 Wall Street, From M-1/SC to P-1		Omitted
18373	6-16-2015	Releasing all Conditions Placed on Property by Special Contract Approved on October 23, 1956		Omitted
18374	6-16-2015	Amending the Future Land Use Map Contained in "Plan El Paso".		Omitted
18375	6-16-2015	Changing the Zoning of a Portion of Lot 1, Block 1, 375/Railroad Commercial Park From M-1 to C-3 and Imposing Conditions		Omitted
18376	6-16-2015	Authorizing the Issuance of Water and Sewer Revenue Bonds, Series 2015A		Omitted
18377	6-23-2015	General Obligation Refunding and Improvement Bonds, Series 2015		Omitted
18378	6-23-2015	Combination Tax and Revenue Certificates of Obligation, Series 2015		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18379	6-30-2015	An Ordinance granting Special Permit No. PZST14-00035, to allow for Infill Development with reduced lot size, lot width, side street setback, and cumulative front & rear yard setbacks on the property described as Lots 16-17 and 23-28, Hill Terrace Addition, 4500 & 4506 Mobile Avenue and 4507, 4513, 4519, 4525, 4531, & 4537 Nashville Avenue, City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 4500 & 4506 Mobile Avenue and 4507, 4513, 4519, 4525, 4531, & 4537 Nashville Avenue. Property Owner: ANVIA, L.L.C. PZST14-00035		Omitted
18380	6-30-2015	An Ordinance granting Special Permit No. PZST15-00013, to allow for Infill Development with side yard and side street yard setback and parking reductions on the property described as all of Lot 17 and the west ½ of Lot 18, Block 58, Map of Franklin Heights Addition, 1701 E. Yandell Drive, City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 1701 E. Yandell Drive. Property Owner: PCM Capital Investment, LLC. PZST15-00013		Omitted
18381	7- 7-2015	An Ordinance amending Title 13 (Streets, Sidewalks and Public Spaces) of the El Paso Municipal Code to create Chapter 13.38 (Special Events) to establish separate provisions and streamline the process for the issuance of permits for special events using streets, alleys and other public rights-of-way; and Title 13 (Streets, Sidewalks and Public Spaces), Chapter 13.28 (Sound Amplifying Devices), Section 13.28.020 (Permit Required), Subsection (B) and Section 13.28.030 (Permit Application), Subsection (C) to include special events in permit application fee exemptions; the penalty being as provided for in Chapter 1.08 (General Penalty) of the El Paso City Code	1 Added	Ch. 13.38, 13.38.010—13.38.110
			2a)	13.28.020.B
			2b)	13.28.030.C.2
18382	7- 7-2015	An Ordinance amending Title 15 (Public Services), Chapter 15.08 (Special Privilege License) to delete certain sections relating to the special privilege permitting process for special events that will no longer be necessary due to the establishment of Chapter 13.38 (Special Events); the penalty being as provided for in Chapter 1.08 (General Penalty) of the El Paso City Code	1a) Rpld	26.08.011.A, D
			1b) Rnbd	15.08.011.B. C, E
			as	15.08.011.A—C
			2a)	15.08.120.B
			2b) Rpld	15.08.120.B.8, 9
			Rnbd	15.08.120.B.10
			as	15.08.120.B.8
			2c)	15.08.120.D.1—3
			2d) Rpld	15.08.120.E,
				Table 1-1, 2.g
			2e)	15.08.120.H.3
			2f) Rpld	15.08.120.H.14

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			Rnbd	15.08.120.H.15—19
			as	15.08.120.H.14—18
			2g) Rpld	15.08.120.O
18383	7- 7-2015	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.30 (Temporary Traffic Control), Section 12.30.060 (Permit, Bond, and Insurance Required), Subsection (C) and Section 12.30.070 (Permit Fees), Subsection (B) to include special events in the definitions and fee exemptions; the penalty being as provided for in Chapter 1.08 (General Penalty) of the El Paso City Code	1a)	12.30.060.C
			1b)	12.30.070.B
18384	7- 7-2015	An Ordinance authorizing the City Manager to sign a contract of sale and any other necessary documents between the City of El Paso and Miguel Luis Huerta, Jr. and Michelle Elizabeth Carrasco which will allow the City to convey Lot 24, Block 3, SOMBRAS DEL SOL UNIT TWO, an Addition to the City of EL Paso, El Paso County, Texas according to the map thereof recorded in Volume 77, Page 95, Plat Records of El Paso County, Texas; also known and numbered as 12497 Jon Evans, El Paso, Texas to Miguel Luis Huerta, Jr. and Michelle Elizabeth Carrasco		Omitted
18385	7-14-2015	An Ordinance amending the Future Land Use Map contained in "Plan El Paso" for the property legally described as Parcel 1: Portion of Lot 2, Block 1, Butterfield Trail Aviation Park Unit Two, and a portion of Sections 34 And 35, Block 80, Township 2, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas; and, Parcel 2: Portion of Lot 2, Block 2, Butterfield Trail Aviation Park Unit Two, City of El Paso, El Paso County, Texas from O-7 Urban Expansion to G-4 Traditional Suburban		Omitted
18386	7-14-2015	An Ordinance changing the zoning of the following parcels: Parcel 1: Portion of Lot 2, Block 1, Butterfield Trail Aviation Park Unit Two, and a Portion of Sections 34 and 35, Block 80, Township 2, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas, from M-1 (Manufacturing) to C-4 (Commercial); and, Parcel 2: Portion of Lot 2, Block 2, Butterfield Trail Aviation Park Unit Two, City of El Paso, El Paso County, Texas, from M-1 (Manufacturing) to C-4 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: East and West of Global Reach and North of Montana. Property Owner: City of El Paso, Texas. PZRZ14-00005		Omitted
18387	7-14-2015	An Ordinance vacating a 0.116-acre portion of Fairway Circle right-of-way (40-foot right-of-way, Block 4, Upper Valley Surveys), City of El Paso, El Paso County, Texas. SURW14-00007		Omitted
18388	7- 7-2015	An Ordinance granting Special Permit No. PZST15-00004 to allow for infill development with a reduction in lot width and area on the property described as a Portion of Tract 13, Sunland Gardens, 8844 Sunland Road, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 8844 Sunland Road. Property Owner: Manuel Granados and Guillermina L. Granados. PZST15-00004		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18389	7-21-2015	An Ordinance amending Title 20 (Zoning), Chapter 20.18 (Sign Regulations), Article IV (On Premise Sign Regulations), Section 20.18.400 (General) to revise sign standards for changeable electronic variable message signs to remove distance requirements from certain zoning districts. The penalty is as provided for in Chapter 20.24 of the El Paso City Code	1	20.18.400.A.9.h
18390	7-21-2015	An Ordinance amending Ordinance No. 18031 Establishing Deadlines and Procedures for Members of City Council To Place Matters on the Agenda for City Council Meetings	1 Added	Ch. 2.06, 2.06.010—2.06.060
18391	7-28-2015	An Ordinance amending Title 5 - Business License and Permit Regulations - Chapter 5.12 - Dealers in Secondhand Goods, Dealers in Crafted Precious Metals, Coin Dealers and Pawnbrokers - in its entirety relating to all provisions including clarifications and revisions of definitions and exclusions; clarifications and revisions of administration; clarification and revisions regarding license application, investigation, issuance, denial, appeal and restrictions; clarification and revisions of records requirements; clarification and revisions of inspection and retainment of goods; and clarification and revisions regarding violations and penalties pursuant to Sections 5.12.220 and 5.12.230 of the ordinance	1	Ch. 5.12, 5.12.010—5.12.230
18392	7-28-2015	An Ordinance vacating a portion of Oregon Street and Mills Avenue rights-of-way, within Mills Addition, City of El Paso, El Paso County, Texas. Subject Property: South of San Jacinto Plaza; Applicant: Mills Plaza Promenade, LLC; SURW12-00020		Omitted
18393	7-28-2015	An Ordinance vacating an easement located on a portion of Lot 5, Block 10, Sierra Crest Replat B, City of El Paso, El Paso County, Texas. Subject Property: North of Robinson & East of Okeefe; Applicant: Douglas Chan SUET15-00001		Omitted
18394	7-28-2015	An Ordinance amending Title 13 (Streets, Sidewalks and Public Spaces), Chapter 13.36 (Parades and Public Assemblies), Section 13.36.050 (Costs and Fees), to delete Subsections (E) and (F) of the El Paso Municipal Code to increase public accessibility to and ease of participation in a funding assistance program for eligible parade events; the penalty being as provided for in Section 13.36.100 (Violation-Penalty) of the El Paso City Code	3 Rpld	13.36.050.E, F
18395	7-28-2015	An Ordinance approving and authorizing the execution of a Credit Agreement with Bank of America, N.A. and other related agreements with respect to the City of El Paso, Texas, Water and Sewer Commercial Paper Notes, Series A, amending the Ordinance authorizing the issuance of such Notes, reauthorizing the issuance of such Notes and resolving other matters incident and related thereto		Omitted
18396	8- 4-2015	An Ordinance amending the Future Land Use Map contained in "Plan El Paso" for the property legally described as: Parcel 1: Portion of Tract 10J, A.F. Miller Survey No. 211, 135 North Resler Drive, City of El Paso, El Paso County, Texas; and, Parcel 2: Portion of Tract 10J, A.F. Miller Survey No. 211, 135 North Resler Drive, City of El Paso, El Paso County, Texas from O-2 Natural to G-4 Suburban-Walkable		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18397	8- 4-2015	An Ordinance changing the zoning of the following real property known as: Parcel 1: Portion of Tract 10J, A.F. Miller Survey No. 211, 135 Resler Drive, City of El Paso, El Paso County, Texas, from P-R 2/sc (Planned Residential II/special contract) to C-2/c (Commercial/Condition); and, Parcel 2: Portion of Tract 10J, A.F. Miller Survey No. 211, 135 North Resler Drive, City of El Paso, El Paso County, Texas, from P-R 2/sc (Planned Residential II/special contract) to C-2/c (Commercial/Condition); and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject property: 135 North Resler Drive. Property Owner: Armour Self Storage I, Limited Partnership. PZRZ15-00011		Omitted
18398	8- 4-2015	An Ordinance releasing all conditions placed on property by Ordinance No. 8058 on the property described as Parcel 1: Portion of Tract 10J, A.F. Miller Survey No. 211, 135 North Resler Drive, City of El Paso, El Paso County, Texas; and, Parcel 2: Portion of Tract 10J, A.F. Miller Survey No. 211, 135 North Resler Drive, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject property: 135 North Resler Drive. Property Owner: Armour Self Storage I, Limited Partnership. PZCR15-00002		Omitted
18400	8- 4-2015	An Ordinance vacating the right-of-way over the property described as a portion of Cebada Street and alley out of Block 61, Supplemental Map No. 1 of East El Paso Addition, City of El Paso, El Paso County, Texas. Subject Property: West of Copia and North of 110; Applicant: El Paso Water Utilities/PSB SURW15-0008		Omitted
18399	8-18-2015	An Ordinance levying FY 2016 taxes		Omitted
18402	8-18-2015	An Ordinance amending Ordinance numbers 018064 and 018223 which amended and updated the zone schedule No. 1, Rates, Rules, Charges and Regulations applying at Foreign Trade Zone No. 68, El Paso, Texas; to amend the definition of Distribution Site Operator and to set the annual fees for Manufacturing Operator and Distribution Site Operator as listed in the Tariff Schedule; and to revise appendices D and E to the Tariff Schedule		Omitted
18403	8-18-2015	An Ordinance approving the form of the Foreign Trade Zone Distribution Site Operator Agreement and authorizing the City Manager to execute said agreement		Omitted
18404	8-18-2015	An Ordinance changing the zoning of a Portion of Lot 1, Block 23, Vista Granada Unit Three, 1374 George Dieter Drive, City of El Paso, El Paso County, Texas, from C-1 (Commercial) to C-3 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject property: 1374 George Dieter Drive. Property Owner: George R. Gonzalez & Textape, Inc. PZRZ15-00015		Omitted
18405	8-18-2015	An Ordinance releasing a condition placed on property by Ordinance No. 9332 which changed the zoning of a Replat of All of Lots 1-5, Block 3, and All of Lots 1-17, Block 5, and all of Bir Court, and a portion of Duckett Road, and all of the PSB right-of-way, River Run Subdivision Unit Two, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: North of Country Club Road and East of Upper Valley Road. Property Owner: Welch and Associates, Inc. PZCR15-00003		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18406	8-18-2015	An Ordinance granting a License to the Camino Real Regional Mobility Authority, a regional mobility authority created and operating pursuant to Chapter 370 of the Texas Transportation Code, to permit the construction, installation, maintenance, use and repair of bicycle share facilities on certain public properties, including public rights-of-way in the City of El Paso, El Paso County, Texas		Omitted
18407	8-18-2015	An Ordinance amending Title 12 (Vehicles and Traffic) Chapter 12.44 (Stopping, Standing and Parking Generally) of the El Paso City Code to add Section 12.44.300 (Educational Parking District) to create an educational parking district and restrictions; the penalty being as provided in sections 12.84.010 and Chapter 12.85 of the El Paso City Code	1 Added	12.44.300
18408	8-18-2015	An Ordinance amending Title 12 (Vehicles and Traffic) Chapter 12.88 (Schedules), Section 12.88.200 (Schedule XVII-Restrictions on Parking in Residential Districts), of the El Paso City Code to create a new zone for an educational parking district in the area surrounding the Mesita Early Childhood Development Center, the penalty being as provided in Section 12.84.010 and Chapter 12.85 of the El Paso City Code	1 Added	12.88.200, Zone V
18409	8-25-2015	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 20.060 (Signal Legend - Go, Caution and Stop), Subsection 12.20.060(C)(1)(A) (Red Alone or "Stop") of the El Paso City Code, to Add Santa Fe Street—Wyoming Avenue, the penalty being as provided in Section 12.84.010 and 12.85 of the El Paso City Code	1	12.20.060.C.1.a
18410	9- 8-2015	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.44 (Stopping, Standing and Parking Generally), Section 12.44.180 (Regulations Pertaining to Certain Special Situations) of the El Paso City Code to clarify that parking meter rental fees do not apply to city events; the penalty as provided for in section 12.84.010 and Chapter 12.85 of the El Paso City Code.	1	12.44.180.B.28.c.
18411	9- 8-2015	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.56 (Parking Meters), Section 12.56.020F (Installation) of the El Paso City Code to authorize the International Bridges Director to recommend parking meter day and time exceptions to City Council; to amend 12.56.020F.2 to extend the free Saturday downtown parking exception; to amend 12.56.020F to add a free lunchtime parking exception to Anthony Parking Lot "A" in Union Plaza; the penalty as provided for in section 12.80.240 and Chapter 12.85 of the El Paso City Code.	1	12.56.020.F.
18412	9- 8-2015	An Ordinance vacating a portion of San Francisco Street under the Durango Street overpass and A Portion Of Block 47-M, Out Of Mills Map Campbell Addition, City Of El Paso, El Paso County, Texas. Subject Property: North of San Antonio and West of El Paso; Property Owner: The City of El Paso SURW15-00001.		Omitted
18413	9- 8-2015	An Ordinance amending Title 9 (Health and Safety), Chapter 9.04 (Solid Waste Management), Section 9.04.630 (Other Penalties), To Increase The Maximum Fine For Illegal Dumping To $4,000; The Penalty As Provided In Section 9.04.630 of The El Paso City Code.	1	9.04.630

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18414	9-15-2015	An Ordinance changing the zoning of Tract 1-F-1-P, Block 5, Ascarate Grant, 753 N. Carolina Drive, City of El Paso, El Paso County, Texas, from R-3 (Residential) to S-D (Special Development), pursuant to Section 20.04.360, and approving a detailed site development plan pursuant to Section 20.04.150 and 20.10.360 of the El Paso City Code to allow for a rear setback reduction as permitted in the S-D (Special Development) zone district. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject property: 753 N. Carolina Drive. Property Owner: Ambrocio P. Baldonado. PZRZ15-00012.		Omitted
18415	9-15-2015	An Ordinance changing the zoning of the property described as Parcel 1: Lot 1, Block 11, Eastwood, City of El Paso, El Paso County, Texas; and, Parcel 2: Lot 2, Block 11, Eastwood, City of El Paso, El Paso County, Texas, 1141 Caper Road and 7827 Bois D' Arc Drive, from R-3 (Residential) to S-D (Special Development), pursuant to Section 20.04.360, and approving a detailed site development plan pursuant to Section 20.04.150 and 20.10.360 of the El Paso City Code to allow for a front setback reduction as permitted in the S-D (Special Development) zone district. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject property: 1141 Caper Road and 7827 Bois D' Arc Drive. Property Owner: Armando Beltran, MD. PZRZ15-00018.		Omitted
18416	9-22-2015	An Ordinance changing the zoning of Lots 5 and 6, and a Portion of Lots 4 and 7, Block 43, Hart's Survey No. 9, 311 Montana Avenue, City of El Paso, El Paso County, Texas from A-2 (Apartment) to C-2 (Commercial), and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 311 Montana Avenue. Property Owner: MIMA Properties, L.L.C. PZRZ15-00007.		Omitted
18417	9-29-2015	An Ordinance changing the zoning of the property described as Tract 10C, Block 6, Ysleta Grant, 8685 North Loop Drive, City of El Paso, El Paso County, Texas from R-4 (Residential) to S-D/c (Special Development/condition), pursuant to Section 20.04.360, imposing a condition, and approving a detailed site development plan pursuant to Section 20.04.150 and 20.10.360 of the El Paso City Code to allow for reduction of front yard setback and increase density as permitted in the S-D (Special Development) zone district. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 8685 North Loop Drive. Property Owner: Enrique Mata, Jr. PZRZ15-00002.		Omitted
18418	9-29-2015	An Ordinance amending Ordinance No. 018401 Calling a Special Election for the submission of Charter Amendments to be held within the City, on November 3, 2015, to appoint the El Paso County Elections Administrator as the Early Voting Clerk for Joint Early Voting.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18419	10- 6-2015	An Ordinance granting Special Permit No. PZST15-00021, to allow for Infill Development with reduced lot area, lot depth, and front yard setback on the property described as a portion of Lot 9, Block 2, River Valley Estates Replat A, 5905 Montoya Drive, City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 5905 Montoya Drive. Property Owner: Maria C. Saenz Montoya and Jose C. Favela PZST15-00021.		Omitted
18420	10- 6-2015	An Ordinance granting Special Permit No. PZST15-00023 to allow for infill development with a reduction in front, side, and side street yard setbacks, as well as a 50 percent parking reduction, on the property described as Blocks C and D, Bassett Addition, an addition to the City of El Paso, El Paso County, Texas, according to the plat thereof on file in Volume 5, Page 21, Real Property Records, El Paso County, Texas Plus the alley within said Block C and a portion of Overland Street lying between Blocks C and D vacated by Ordinance No. 242 filed May 2, 1940; Plus a 2.2 foot strip described in deed dated January 15, 1940 and filed in Volume 660, Page 297, Real Property Records of El Paso County, Texas: Save and Except a portion sold off to the City of El Paso in deed dated April19, 1949 filed in Volume 1129, Page 380, Real Property Records of El Paso County, Texas; plus Lots 3 and 4, Block 120, in the unplatted portion of Bassett Addition, North of Cypress Avenue and East of Eucalyptus, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: North of Cypress Avenue and East of Eucalyptus Street. Property Owner: Housing Authority of the City of El Paso, Texas. PZST15-00023.		Omitted
18421	10- 6-2015	An Ordinance authorizing the City Manager to sign a Contract of Sale and a Special Warranty Deed conveying a 0.2281 acre parcel of land being a portion of Tract 10E2, San Antonio & Mexican Gulf Railroad Company Survey No. 268, City of El Paso, El Paso County, Texas, and any other documents necessary to complete the sale to El Paso Electric Company.		Omitted
18422	10- 6-2015	An Ordinance authorizing the City Manager to sign a Contract of Sale and a Special Warranty Deed conveying a 0.973 acre parcel of land being a Portion of Section 31, Block 80, Township 1, Texas and Pacific Railway Surveys, City of El Paso, El Paso County, Texas, and any other documents necessary to complete the sale to El Paso Electric Company.		Omitted
18423	10- 6-2015	An Ordinance granting a non-exclusive franchise to ANVACO CORPORATION to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the franchise terms and conditions; the penalty as provided in Section 9.04.630 of the El Paso City Code.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18424	10-13-2015	An Ordinance granting Special Permit No. PZST15-00029 to allow for infill development with a rear yard setback reduction on the property described as a Portion of Lot 2, Block 27, West Hills Unit Thirteen, 410 Thorn Avenue, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 410 Thorn Avenue. Property Owner: MS Property, LLC. PZST15-00029.		Omitted
18425	10-13-2015	An Ordinance granting Special Permit No. PZST15-00028 to allow for infill development with a reduction in front and rear cumulative setback, on the property described as a Lot 10, Block 1, Emerald Valley Estates, Replat "A", 709 Woodfield Drive, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 709 Woodfield Drive. Property Owner: Bosko and Alma Lemez. PZST15-00028		Omitted
18246	9-16-2014	An Ordinance amending Title 15 (Public Services), Chapter 15.08. (Street Rentals), Section 15.08.120 (Special Privilege Licenses and Permits), to include a new type of encrochment for sidewalk retail vending in Table 1-1, and to add subsection R (Sidewalk Retail Vending) to allow for and establish standards for sidewalk retail vending. Penalty is as provided in Section 15.08.125 of the El Paso City Code.	1	15.08.120E
			2 Added	15.08.120R
18426	10-20-2015	An Ordinance granting Special Permit No. PZST15-00025, to allow for Infill Development with reduced lot width on the property described as Tract 68, Sunrise Acres Unit #2, City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: North of Atlas Avenue and East of Pandora Street. Property Owner: ANVIA, L.L.C. PZST15-00025.		Omitted
18427	10-20-2015	An Ordinance vacating the city right-of-way over a 0.043-acre portion of Saint Charles Street, Beaumont Subdivision, City Of El Paso, El Paso County, Texas. Subject Property: North of Fred Wilson and West of Patriot Freeway US 54; Property Owner: Luis H. De La Cruz. SURW15-00010.		Omitted
18428	10-20-2015	An Ordinance vacating a 10 foot wide, 1,129.42 total square foot drainage easement, legally described as a portion of Lots 13 to 16, Block 140, Highland Park Addition, City of El Paso, El Paso County, Texas. Subject Property: North of Hamilton and East of Alabama. Property Owner: Rosa Fernandez. SUET15-00004.		Omitted
18429	10-27-2015	An Ordinance authorizing the issuance of $50,000,000 of City of El Paso, Texas, Water and Sewer Revenue Bonds, Series 2015B to the Texas Water Development Board in order to finance the acquisition of secure, underground water resources for the system; and enacting provisions related thereto.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18430	10-27-2015	An Ordinance authorizing the issuance of City of El Paso, Texas, Water and Sewer Revenue Refunding Bonds, Series 2015C to refund certain previously issued obligations of the City; and resolving matters which are necessary to effectuate said issuance, including the delegation of matters relating to the sale and issuance of the Bonds to an authorized city officer or employee within certain specified parameters.		Omitted
18431	10-27-2015	An Ordinance amending Title 12 (Vehicles and Traffic), Section 12.44.280 (Restrictions on Parking in Residential Parking Districts) to amend the definition of a residential property to include apartment complexes with five or more dwelling units in a designated historical district, and to revise the provisions regarding the issuance of permits. The penalty being as provided in section 12.84.010 and chapter 12.85 of the El Paso City Code.	1	12.44.280
18432	10-27-2015	An Ordinance changing the zoning of Tract 28, O.A, Danielson Survey No. 310, City of El Paso, El Paso County, Texas from R-3 (Residential) to A-O/c (Apartment/Office/conditions), and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: West of Zaragoza Road and North of Physicians Drive. Property Owner: EDMAR Investment, LLC/Edgar Garcia. PZRZ15-00022		Omitted
18433	10-27-2015	An ordinance vacating the City right-of-way over a portion of Cebada Street, Durazno Avenue, Estrella Street and all of a 20 foot alley between Cebada Street and Estrella Street and a portion of a 20 foot alley between Cebada Street and Luna Street, City of El Paso, El Paso County, Texas. Subject Property: South of Gateway East and East of Piedras; Property Owner: El Paso Water Utilities. SURW15-00011		Omitted
18434	11- 3-2015	An Ordinance granting Special Permit No. PZST15-00026 to allow for infill development with a reduction in lot area and width, on the property described as a Portion of Tract 85, Map of Sunrise Acres No. 1, 8420 Leo Street, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 8420 Leo Street. Property Owner: MDA Investments, L.L.C. PZST15-00026.		Omitted
18435	11- 3-2015	An Ordinance granting Special Permit No. PZST15-00027 to allow for infill development with a reduction in lot area and width, and a reduction in cumulative front and rear yard setback, on the property described as Lot 24, Block 2, Salas Subdivision, 192 Rio Road, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 192 Rio Road. Property Owner: MJ Real Properties. PZST15-00027.		Omitted
18436	11- 3-2015	An Ordinance changing the zoning of a Portion of Lot 1, Block 341, Vista Del Sol Unit Sixty Nine, City of El Paso, El Paso County, Texas from C-1 (Commercial) to C-3 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: West of Zaragoza Road and North of Rojas Drive. Property Owner: George R. Gonzalez and Textape, Inc. PZRZ15-00023.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18437	11- 3-2015	An Ordinance granting Special Permit No. PZST15-00030, to allow for a Ground-mounted 65' Personal Wireless Service Facility on the property described as a portion of Lot 1, Block 12, Unit Three Eastside Industrial District, 1040 Hawkins Boulevard, City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.455 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 1040 Hawkins Boulevard. Property Owner: Ruben Nares, Jr. PZST15-00030.		Omitted
18438	11- 3-2015	An Ordinance authorizing the City Manager to sign a Lease and Concession Agreement with Ruben Holguin Cuellar, DBA Rent-A-Chef Catering for the lease of the facility located at San Jacinto Plaza known as the San Jacinto Plaza Café, consisting of 177 square feet for a one-year term commencing on the date the City approves the lease and ending one year from the rent commencement date, at an annual rent of $5,400.00 and an annual concession fee of $600.00 to be paid on a quarterly basis, and that there is one option to extend the term for one additional year by the City Manager under the same terms and conditions.		Omitted
18439	11-10-2015	An Ordinance granting a Special Privilege License to Integra El Paso, LLC for the construction, installation, maintenance, use, and repair of one (1) subsurface retaining wall within portions of City right-of-way along Alabama Street adjacent to the property located at 5312 Alabama Street, El Paso, Texas. (NESV2015-00017)		Omitted
18440	11-10-2015	An Ordinance changing the zoning of the property described as Lot 22, Block 206, Vista Del Sol Unit 38, 10622 Montwood Drive, City of El Paso, El Paso County, Texas from A-O (Apartment/Office) to S-D/c (Special Development/condition), pursuant to Section 20.04.360, imposing a condition, and approving a detailed site development plan pursuant to Section 20.04.150 and 20.10.360 of the El Paso City Code to allow for reduction of front, rear, and side street yard setbacks as permitted in the S-D (Special Development) zone district. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 10622 Montwood Drive. Property Owner: Prestigio Properties V, LLC. PZRZ15-00016		Omitted
18441	11-17-2015	An Ordinance changing the zoning of Parcel 1: Lots 5 and 6, Block 2, Cielo Vista Amended Plat, City of El Paso, El Paso County, Texas from A-2 (Apartment) and C-4 (Commercial) to C-3/c (Commercial/conditions) and Parcel 2: Lots 5 thru 10, Block 3, Cielo Vista Amended Plat, City of El Paso, El Paso County, Texas from A-2 (Apartment) to C-3/c (Commercial/conditions) and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: North of Edgemere Boulevard and East of Airway Boulevard. Property Owner: E.P. Simana, L.P. PZRZ15-00024		Omitted
18442	12- 1-2015	An Ordinance changing the zoning of a portion of Tract 5D, Block 3, Ysleta Grant, 9522 North Loop Drive, City of El Paso, El Paso County, Texas from R-F (Ranch-Farm) to S-D (Special Development). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 9522 North Loop Drive. Property Owner: North Loop Apartments, LLC. PZRZ15-00025		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18443	12- 1-2015	An Ordinance granting Special Permit No. PZST15-00031, to allow for a 65'ground-mounted Personal Wireless Service Facility (PWSF) in a C-4 (Commercial) zoned parcel with a modified separation between PWSF antenna support structures on the property described as a Portion of Lots 25 and 26, inclusive, Block 11, East El Paso Addition (Supplemental Map No. 1), 3400 Alameda Avenue, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.455 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 3400 Alameda Avenue. Property Owner: Robert Malooly. PZST15-00031		Omitted
18444	12- 1-2015	An Ordinance granting Special Permit No. PZST15-00033 to allow for infill development with a reduction in lot area and depth, as well as rear, side, and cumulative front and rear yard setback reductions on the property described as a Portion of Tract 29, Country Club Place South Side, 825 Sunset Road, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 825 Sunset Road. Property Owner: Walter and Margaret Tippin. PZST15-00033		Omitted
18445	12- 1-2015	An Ordinance vacating the city right-of-way over a 0.42 acre portion of Florence Street, between Blocks 82 and 83, Campbell's Addition, an Addition to the City of El Paso, El Paso County, Texas. (SURW15-00007)		Omitted
18446	12- 1-2015	An Ordinance changing the zoning of All of Tract 4G, E.L. De Shazo Survey 218, City of El Paso, El Paso County, Texas, from R-3 (Residential) to C-1 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: East of N. Mesa Street and South of Castellano Drive. Property Owner: MALBER, LLC. PZRZ14-00050		Omitted
18447	12- 8-2015	An Ordinance amending Ordinance No. 017380,Title 9 (Health and Safety), Chapter 9.04 (Solid Waste Management) to delete redundant Sections including types of permits in Section 9.04.961, the application for permits in Section 9.04.962, Vehicle Standards and Markings in Sections 9.04.963, term of permit in Section 9.04.964, permit transferability in Section 9.04.965, violation of permit in Section 9.04.966, and appeal from denial, suspension, revocation in Section 9.04.967 of the El Paso City Code.	1 Rpld	9.04.961—9.04.967
18448	12- 8-2015	An Ordinance amending Title 9 (Health and Safety), Chapter 9.11 (Tree Care), to amend Section 9.11.010G (General Provisions) to declare dead trees a nuisance; clarifying the delivery of notice of the City's Order; and adding an appeal to City Manager; the penalty as provided in Section 9.11.010H of the City Code.	1	9.11.010G
18449	12-15-2015	An Ordinance amending Title 5 - Business License and Permit Regulations - Chapter 5.12 - Dealers in Secondhand Goods, Dealers in Crafted Precious Metals, Coin Dealers, and Pawnbrokers - relating to revisions to definitions; revisions to records requirements; revisions to accessibility of retained goods; revisions to inspection of goods and records; and revisions to exclusions.	1	5.12.010—5.12.160

Ordinance Number	Approval Date	Description	Section	Section this Code
18450	12-15-2015	An Ordinance amending Title 9 (Health and Safety), Chapter 9.12 (Food and Food Handling Establishments), Sections 9.12.005 (Texas Food Establishment Rules-Adopted); 9.12.007 (Applicability); 9.12.010 (Definitions); 9.12.130 (Required); 9.12.220 (Required); 9.12.800 (Mobile Establishments); and 9.12.810 (Temporary, Recurrent, and Seasonal Establishments), to adopt the most recent changes to the Statewide Texas Food Establishment Rules; the penalty as provided in Section 9.12.890 of the El Paso City Code.	1	9.12.005
			2	9.12.007
			3	9.12.010
			4	9.12.130A(1)(c)
			5	9.12.220
			6	9.12.800E
			7	9.12.810A(2), C(3)
18451	12-22-2015	An Ordinance changing the zoning of a portion of Blocks 2, 3, 4, 7, 9 and 10, all of Blocks 5 and 6, Green Acres Subdivision, South of Artcraft Drive and North of Bridal Drive, City of El Paso, El Paso County, Texas from R-2 (Residential) to P-R I (Planned Residential I). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: South of Artcraft Drive and North of Bridal Drive. Property Owner: Two Stars Joint Venture. PZRZ15-00028.		Omitted
18452	12-22-2015	An Ordinance changing the zoning of a portion of Tract 14B and all of Tract 15B, Block 45, Ysleta Grant, 174 N. Zaragoza Street, City of El Paso, El Paso County, Texas, from R-4/H (Residential/Historic) to S-D/H (Special Development/Historic). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Property Owners: Gerardo and Consuelo Chacon. PZRZ15-00026.		Omitted
18453	1-12-2016	An Ordinance changing the zoning of the following parcels: Parcel 1: Tract 6A2A, Section 33, Block 79, Township 2, Texas and Pacific Railway Company Surveys, North of Montana Avenue and East of State Jail Road, City of El Paso, El Paso County, Texas, from R-F (Ranch-Farm) to C-4 (Commercial); and, Parcel 2: Tract 11C1, Section 34, Block 79, Township 2, Texas and Pacific Railway Company Surveys, 12525 Montana Avenue, City of El Paso, El Paso County, Texas, from R-F (Ranch-Farm) to C-4 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: Parcel 1: North of Montana Avenue and East of State Jail Road. Parcel 2: 12525 Montana Avenue. Property Owners: Robert Barron, Armando Barron, and Daniel Barron. PZRZ15-00029		Omitted
18454	1-12-2016	An Ordinance amending Title 20 (Zoning), Chapter 20.10 (Supplemental Use Regulations) Section 20.10.200 (Energy Conversion Systems) Subsection B. (Wind-Driven Generators Or Wind-Driven Pumps) to revise and add location and height requirements.	1	20.10.200B

Ordinance Number	Approval Date	Description	Section	Section this Code
18455	1-12-2016	An Ordinance granting Special Permit No. PZST15-00032 to allow an energy conversion system with wind-driven generators on the property described as Lot 1, Block 1, Poe Subdivision, 6330 Montana Avenue, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.200 Energy Conversions Systems of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 6330 Montana Avenue. Property Owner: Poe Investments, LTD. PZST15-00032		Omitted
18456	1-12-2016	An Ordinance granting Special Permit No. PZST15-00037, to allow for infill development with a reduction in lot area and lot width on the property described as Lot 9, Block 13, A Revised Map of Sahara Subdivision , 5632 Saluki Drive, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 5632 Saluki Drive. Property Owner: Ricardo Benavente Jr. PZST15-00037		Omitted
18457	1-12-2016	An Ordinance changing the zoning of a portion of Tract 1-B, Lying in Section 45, Block 79, Township 2, Texas and Pacific Railroad Company Surveys, City of El Paso, El Paso County, Texas from R-3 (Residential) to C-1 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: North of Zaragoza Road and East of Tierra Este Road. Property Owner: El Paso Electric Company. PZRZ15-00031		Omitted
18458	1-12-2016	An Ordinance amending Title 20 (Zoning), Chapter 20.10 (Supplemental Use Regulations) Section 20.10.060 (Alcohol Beverages), Subsection B. (Restrictions), to revise the alcohol sales prohibition within 300 feet of a church, school, commercial day care or public hospital. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.	1	20.10.060B1
			2	20.10.060B2
18459	1-12-2016	An Ordinance amending Title 20 (Zoning), Chapter 20.12 (Density and Dimensional Standards), Section 20.12.020 (Table of Density and Dimensional Standards), Appendix B, Subpart C (Building Setbacks) to revise the minimum front yard setback for the A-O (Apartment-Office) zoning district and the minimum rear yard setback for the C-2 (Commercial) zone districts for "Other Permitted Uses". The penalty is as provided for in Chapter 20.24 of the El Paso City Code.	1	20.12.020 App. B
			2	20.12.020 App. B
18460	1-12-2016	An Ordinance amending Title 20 (Zoning), Chapter 20.18 (Sign Regulations), Article IV (On-Premise Sign Regulations), Section 20.18.460 (C-5 District), Subsection F (Perpendicular Signs), to amend the sign standards for perpendicular signs located in the C-5 zoning district. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.	1	20.18.460F
18461	1-12-2016	An Ordinance amending Title 20 (Zoning), Chapter 20.02 (General Provisions and Definitions), Chapter 20.16 (Screening and Fencing), Section 20.16.020 (Mandatory Walls) Subsections A, B and H to amend the screening and fencing requirements. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.	1 Added	20.02.559
			2	20.16.020A, B

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			3	20.16.020H
18462	1-12-2016	An Ordinance authorizing the City Manager to sign a Deed and any other documents necessary to convey to the State of Texas, acting by and through the Texas Transportation Commission, a 0.1952 acre parcel of land situated in the John Barker Survey, Number 10, Abstract Number 7, El Paso County, Texas, being part of Lot 13 of La Calavera Settlement, an addition to the City of El Paso, El Paso County, Texas, said parcel to be included in the Loop 375 Border West Highway Project.		On Hold
18463	2- 9-2016	An Ordinance granting Special Permit No. PZST15-00036, to permit a group residential facility on the property described as Lot 4, Block 7, Pebble Hills Subdivision, 10628 Drillstone Drive, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.265 Group Residential Facilities of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 10628 Drillstone Drive. Property Owner: Ana Luisa Vega. PZST15-00036.		Omitted
18464	2-23-2016	An Ordinance granting Special Permit No. PZST15-00039, to allow for Infill Development with reduced front yard setback, side yard setback, and cumulative front & rear yard setbacks on the property described as Lot 8, Block D, Deal Addition, 6010 Tampa Avenue, City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 6010 Tampa Avenue. Property Owner: Enrique Ayala, PZST15-00039.		Omitted
18465	2-23-2016	An Ordinance authorizing the City Manager to sign a Contract of Sale with RAKMR I, LTD. for the sale of sixteen parcels owned by the City of El Paso, and being more particularly described as Lots 2, 9, 11 and 13, Block 9, Lots 1, 3, 4 6, 8 and 9, Block 10, Lots 3, 5, 7, 10 and 11, Block 11, and Lot 4, Block 12, Summerlin Subdivision, an addition to the City of El Paso, El Paso County, Texas.		Omitted
18466	2-23-2016	An Ordinance amending Ordinance No. 018390 which amended Ordinance No. 018031 to establish procedures for members of Council to place items on the agenda for the purpose of deleting the requirement that items placed by members of Council not be scheduled until the second Tuesday following the submittal.		Omitted
18467	2-23-2016	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.010 (Schedule I - One-way streets), to add a new location at East First Avenue, Eastbound from Coles Street to its terminus, the penalty being as provided in Section 12.84.010 and Chapter 12.85 of the El Paso City Code.	1	12.88.010
18468	2-23-2016	An Ordinance amending Title 9 (Health and Safety), Chapter 9.04 (Solid Waste Management), Section 9.04.880 (City Abatement), Subsections 9.04.880B and F, to remove the certified mail part of the notice requirement; the penalty being as provided in Section 9.04.630 of the El Paso City Code.	1	9.04.880B, F

Ordinance Number	Approval Date	Description	Section	Section this Code
18469	2-23-2016	An Ordinance granting a non-exclusive franchise to El Paso Sanitation Systems, Inc. to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the franchise terms and conditions; the penalty as provided in Section 9.04.630 of the El Paso City Code.		Omitted
18470	2-23-2016	An Ordinance amending Title 9 (Health and Safety), Chapter 9.44 (Midwives), to delete the entire chapter.	1 Rpld	Ch. 9.44
18471	2-23-2016	An Ordinance amending Title 7 (Animals), to create Chapter 7.50 (Department of Animal Services), and Sections thereunder, in the El Paso City Code, to create and establish the functions of the department known as the Department of Animal Services.	1 Added	Ch. 7.50
			2 Added	7.50.010
			3 Added	7.50.020
			4 Added	7.50.030
18472	2-23-2016	An Ordinance amending Title 7 (Animals), Chapter 7.04 (Definitions and Administration), Section 7.04.010 (Definitions); Chapter 7.08 (Animals Generally), Section 7.08.020 (Abandonment —Reporting Violations); Section 7.08.030 (Restraint); Chapter 7.12 (Dogs and Cats), Section 7.12.010 (Running at Large Prohibited); Section 7.12.020 (Registration, Vaccination, and Microchips Required); Chapter 7.16 (Impoundment), Section 7.16.010 (Notification), Section 7.16.020 (Redemption - Disposition), and Section 7.16.030 (Fees); To Address Trap-Neuter-Return Cats in each identified section; the penalty being as provided in Section 7.04.080 of the El Paso City Code.	1	7.04.010
			2	7.08.020A
			3	7.08.030
			4	7.12.010
			5	7.12.020A
			6	7.16.010
			7	7.16.020D
			8	7.16.030
18473	3- 8-2016	An Ordinance changing the zoning of the property described as Lot 13 and part of Lot 14, Sunrise Acres No. 3, 4040 Hercules Avenue. City of El Paso, El Paso County, Texas from A-2/sc (Apartments/special contract) to S-D (Special Development) pursuant to Section 20.04.360 and approving a detailed site development plan pursuant to section 20.04.150 and Section 20.10.360 of the El Paso City Code to allow for commercial retail use as permitted in the S-D (Special Development) zone district. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 4040 Hercules Avenue. Property Owner: International Cutting Services, LTD. PZRZ15-00038.		Omitted
18474	3- 8-2016	An Ordinance releasing all conditions placed by Special Contract No. 96267 approved on June 23, 1969 on Lot 13 and part of 14, Sunrise Acres No. 3, 4040 Hercules Avenue, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 4040 Hercules Avenue. Property Owner: International Cutting Services, LTD. PZCR15-00005.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18475	3- 8-2016	An Ordinance granting Special Permit No. PZST15-00035, to allow for a Ground-mounted 75' Personal Wireless Service Facility on the property described as a portion of the underlying parcel known as all of Block 130, a portion of Blocks 105, 134, and 135, and a portion of the closed Alhambra, Patterson, and Bosworth Streets in Austin Terrace Third Supplement Map as amended of the Government Hills Addition, 4700 Leeds Avenue, City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.455 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 4700 Leeds. Property Owner: Cross of Grace Church, Inc. PZST15-00035.		Omitted
18476	3- 8-2016	An Ordinance amending Title 3 (Revenue And Finance), Chapter 3.46 (Wage Theft) in order to amend Section 3.46.020(B) Duties of the Wage Theft Coordinator to include additional duties, amend Section 3.46.030 (A) inclusion in Database to include additional evidence considerations to not include an Employer in the Wage Theft Adjudication Database, amend Section 3.46.030(C) removal from database to add a cause for removal from the Wage Theft Adjudication Database, add Section 3.46.070 City Permits, Licenses, and registrations to establish the procedure for denial of issuance and renewal of certain permits, licenses, and registrations for applicants with a Wage Theft Adjudication Record, and add Section 3.46.080 Permits, Licenses, and Registrations -Appeal Process; the penalty as provided in Section 3.46.070 of the El Paso City Code.	1	3.46.020B
			2	3.46.030A
			3	3.46.030C
			4 Added	3.46.070
			5 Added	3.46.080
18477	3-22-2016	An Ordinance authorizing the issuance of City of El Paso, Texas, Municipal Drainage Utility System Revenue Bonds, Series 2016, in an amount not to exceed $23,845,000.00; and resolving matters related thereto, including the delegation of certain matters relating to the sale of the Bonds to an authorized city officer or employee within certain specified parameters.		Omitted
18478	3-22-2016	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.56 (Parking Meters), Section 12.56.040 (Operation - Time Limits) to allow for the parking of a vehicle in a metered space for a consecutive period of time longer than that permitted when authorized through the grant of a Special Privilege by the City Council or as otherwise authorized by ordinance or permit for use of the metered space pursuant to the requirements of the City Charter and any other applicable City ordinances. The penalty is as provided in Chapter 12.84 of the El Paso City Code.	1	12.56.040 C
			2 Rnbd	12.56.040 E—G
			as	12.56.040 F—H
			3 Added	12.56.040 E

Ordinance Number	Approval Date	Description	Section	Section this Code
18479	3-22-2016	An Ordinance granting a Special Privilege License to El Paso Shopping District, LLC for the placement and use of one (1) non-motorized corn roaster and one (1) vending table within portions of City right-of-way along Fourth Street adjacent to the property located at 620 South El Paso Street on Friday, Saturday, and Sunday year-round from 8:00AM to 8:00PM and permitting the exclusive use of City parking meter space E4-101 for operation of the roaster during said hours. (NESV2015-00022)		Omitted
18480	3-22-2016	An Ordinance amending Title 15 (Public Services), Chapter 15.08 (Street Rentals), Section 15.08.120 (Special Privilege Licenses and Permits), Subsection 15.08.120(N) (Outdoor Patio Cafes) to remove the requirement that City Council approval is required for the sale and service of alcoholic beverages within an outdoor patio café. The penalty is as provided in Chapter 15.08.125 of the El Paso City Code.	1	15.08.120 N
18481	3-22-2016	An Ordinance changing the zoning of the property described as Lots 8 to 11, Block 23, Sunset Heights, 519 Los Angeles Drive, City of El Paso, El Paso County, Texas from R-4/H (Residential/Historic) and A-2/H (Apartment/Historic) to S-D/H (Special Development/Historic). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 519 Los Angeles Drive. Property Owner: Setmax, LLC. PZRZ15-00033		Omitted
18482	3-22-2016	An Ordinance granting Special Permit No. PZST15-00043 to allow for infill development for reduction in the front setback and the reduction of the separation of structures and a parking reduction on the property described as Lots 8 to 11, Block 23, Sunset Heights, 519 Los Angeles Drive, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 519 Los Angeles Drive. Property Owner: Setmax, LLC. PZST15-00043		Omitted
18483	3-22-2016	An Ordinance authorizing the City Manager to execute a quitclaim (tax resale) deed conveying all right, title and interest in the property located at 7812 West Dr. to Francisco Antonio Leyva, in accordance with Section 34.05 (h) of the Tax Code, Section 34.05 (h) permits the City to sell a property for the total amount of the judgment and the sale of the property does not require the consent of each taxing entity entitled to receive proceeds from the sale.		Omitted
18484	3-22-2016	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.56 (Parking Meters), Section 12.56.030 (Parking Space Designation-Use) of the El Paso City Code, to exempt members of city boards, commissions and committees from parking meter fees at parking meters along East Mills Avenue when displaying a city-issued placard during scheduled city board, commission and committee meetings; the penalty as provided in Chapters 12.84 (Violation - Penalty) and 12.85 (Parking Violations Bureau) of the El Paso City Code.	1 Added	12.56.030 G

Ordinance Number	Approval Date	Description	Section	Section this Code
18485	4- 5-2016	An Ordinance authorizing the issuance of "City of El Paso, Texas, General Obligation Refunding Bonds, Series 2016" in an amount not to exceed $150,000,000 for debt service savings; levying a continuing direct annual ad valorem tax for the payment of said Bonds; and resolving other matters which are necessary to effectuate said issuance; including the delegation of matters relating to the sale and issuance of the Bonds to an authorized City official within certain specified parameters.		Omitted
18486	4- 5-2016	An Ordinance granting Special Permit No. PZST15-00045 to allow for infill development with a reduction in rear setback, parking reduction, and density bonus on the property described as Lot 1, Block 1, North Loop Apartments, 9522 North Loop Drive, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 9522 North Loop Drive. Property Owner: North Loop Apartments, LLC. PZST15-00045.		Omitted
18487	4- 5-2016	An Ordinance releasing all conditions placed on property by Special Contract No. 82825 approved on March 17, 1983 and corrected by Contract No. 33164 on September 29, 1985 which were imposed by the rezoning of Portion of Lot 1, Block 2, Mesa Hills West, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 310 Mesa Hills Drive. Property Owner: AHTX 1, LLC. PZCR15-00006.		Omitted
18488	4- 5-2016	An Ordinance changing the zoning of the following parcels: West 89.8 feet of Lot 44, Cinecue Park Subdivision, 8125 Starr Avenue, City of El Paso, El Paso County, Texas from R-F (Ranch-Farm) to R-3 (Residential). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 8125 Starr Avenue. Property Owners: Michelle Gicelda Zumudio Martinez.; Jorge & Ramona Mota PZRZ15- 00030.		Omitted
18489	4-19-2016	An Ordinance amending Title 14 (Aircraft and Airports) of the El Paso City Code, to add a new Subsection 14.16.161 E to Section 14.16.161 (Customer Facility Charge) to set forth expenses which may be paid with Customer Facility Charges.	1 Added	14.16.161 E
18490	4-19-2016	An ordinance granting a special privilege license to CC Restaurant LP d/b/a Cafe Central permitting a surface encroachment of a License Area onto a portion of public right-of-way fronting property at 109 North Oregon Street. (NESV2015-00005)		Omitted
18491	4-19-2016	An Ordinance granting Special Permit No. PZST15-00041, to allow for Infill Development with reduced cumulative front & rear yard setbacks and parking reduction on the property described as East 1/2 of Lot 11, All of Lots 12 and 13, Block 292, Pierce Finley Addition, 1024 E. River Avenue, City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 1024 E. River Avenue. Property Owner: Elguea Properties, PZST15-00041		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18492	4-19-2016	An Ordinance granting Special Permit No. PZST16-00001, to allow for Infill Development with reduced lot area, lot width, side yard setback, and parking reduction on the property described as Lot 169, Singh Addition Unit Three, 9339 Carranza Drive, City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 9339 Carranza Drive. Property Owner: Chris Alderete. PZST16-00001		Omitted
18493	4-19-2016	An Ordinance amending Ordinance No. 016895 to allow public vehicular use on an identified portion of Mills Avenue, Anson Mills map, City of El Paso		Omitted
18494	4-19-2016	An Ordinance approving a First Amendment to the Master Lease Agreement Relating to the City of El Paso, Texas, Downtown Ballpark Venue Project Financing; and resolving other matters incident and related thereto.		Omitted
18495	5- 3-2016	An Ordinance releasing all conditions placed on property by special contract approved on October 23, 1956 which changed the zoning of a portion of Lots 93 to 96, block 7, Eastside Industrial District Unit Two, 1031 Hawkins Boulevard, City of El Paso. Subject Property: 1031 Hawkins Boulevard.		Omitted
18496	5- 3-2016	An Ordinance granting Special Permit No. PZST15-00042, to allow for infill development with a reduced lot width, lot area, and cumulative front and rear yard setback on the property described as a portion of Tracts 357 and 358, Sunrise Acres No. 1, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 infill development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: Portion of Tracts 357 and 358, Sunrise Acres No. 1. Property Owner: Casa Diamantina		Omitted
18497	5- 3-2016	An Ordinance granting special Permit No. PZSTLS-00022, to allow for infill development with a reduction in side yard setback, on the property described as Tract 10B5, Block 17, Ysleta Grant, 7756 Wenda Drive, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 infill development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 7756 Wenda Drive. Property Owner: Miguel F. Quinones & Lazara M. Quinones		Omitted
18498	5- 3-2016	An Ordinance amending Title 20 (Zoning), Chapter 20.14 (Off-street Parking, Loading and Storage Standards), Article I. Vehicular Parking; Section 20.14.050 (parking requirements and standards), Appendix C (Table of Parking Requirements and Standards) to reduce the minimum parking requirements for vehicle parking. The penalty is as provided for in Chapter 20.24 of the El Paso City Code	1	20.14.050 C
18499	5-17-2016	An Ordinance authorizing the issuance of "City of El Paso, Texas Combination Tax and Revenue Certificates of Obligation, Series 2016" in a par amount not to exceed $100,000,000; levying a continuing direct annual ad valorem tax for the payment of such certificates; and resolving other matters which are necessary to effectuate such issuance, including the delegation of matters relating to the sale and issuance of the Certificates to an authorized City official within certain specified parameters		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18500	5-17-2016	An Ordinance authorizing the issuance of "City of El Paso, Texas, General Obligation Bonds, Series 2016" in a par amount not to exceed $200,000,000; levying a continuing direct annual ad valorem tax for the payment of such Bonds; and resolving other matters which are necessary to effectuate such issuance; including the delegation of matters relating to the sale and issuance of the Bonds to an authorized City official within certain specified parameters		Omitted
18501	5-17-2016	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.190 (No Stopping or Standing At Any Time) to add Loma Verde Drive between a point 539 feet north of Rojas Drive and 245 feet south of David Bret Drive, both sides, the penalty being as provided in Section 12.88.190 and Chapter 12.85 of the El Paso City Code. The penalty being as provided for in Section 12.88.190 and Chapter 12.85 of the El Paso City Code	1	12.88.190 B, C
18502	5-17-2016	An Ordinance vacating the City of El Paso's right-of-way over a portion of the Maple Street, Birch Street, Cedar Street and Elm Street crossings of the Union Pacific Railroad located between Bassett's Addition and Alamo Heights Addition in City of El Paso		Omitted
18503	5-17-2016	An Ordinance amending the future land use map contained in "Plan El Paso" for the Northwest Upper Valley Plan to modify the land use designation from very low density residential to mixed use for the property legally described as a portion of Lot 9, Block 1, Country Place Estates, North of Country Club Road and east of Hunters Glenn Lane, City of El Paso		Omitted
18504	5-17-2016	An Ordinance vacating the city right-of-way over a 0.116 acre portion of Resler Drive right-of-way, City of El Paso		Omitted
18505	5-17-2016	An Ordinance amending Title 21 (SmartCode), Chapter 21.50 (Building Scale Plans), to amend Section 21.50.120 (Signage Standards) in its entirety to create new sign standards; and Chapter 21.80 (Tables), to add Table 2 SmartCode Signage Module, in Section 21.80.020. The penalty is as provided for in Chapter 21.60 of the El Paso City Code	1	21.50.120
			2 Added	21.80.020
18506	5-24-2016	An Ordinance amending Title 20 (Zoning), Chapter 20.10 (Supplemental Use Regulations), Section 20.10.680 (Temporary Uses) of the El Paso City Code, to allow for temporary places of assembly on undeveloped lots and in the ranch and farm zoning district and to apply Chapter 20.14 (Off-Street Parking, Loading and Storage) regulations and additional regulations to temporary places of assembly on undeveloped lots. The penalty is as provided for in Chapter 20.24 of the El Paso City Code	1	20.10.680 C.3
18507	5-31-2016	An Ordinance amending Title 18 (Building and Construction), Chapter 18.18 (Outdoor Lighting Code), Article X (Other Exemptions), to add an exemption for city-owned spray parks and the El Paso International Airport Corridor. The penalty is as provided for in Chapter 18.18.400 of the El Paso City Code	1 Added	18.18.376, 18.18.377

Ordinance Number	Approval Date	Description	Section	Section this Code
18508	5-31-2016	An Ordinance amending Title 18 (Building and Construction), Chapter 18.02 (Administrative Code), adding provisions for demolition permits, certificates of use, and conditional certificates of occupancy, adopting the 2015 International Building Code, and adopting appropriate local amendments, the penalty being as provided in 18.02.111 of the El Paso City Code	1	18.02.101.1, 18.02.101.2
				18.02.102
				18.02.104.3
				18.02.104.6—18.02.104.10
				18.02.105.1, 18.02.105.2, 18.02.105.5, 18.02.105.8, 18.02.105.19, 18.02.105.19, 18.02.105.23, 18.02.105.25
			Added	18.02.105.28
			Rnbrd	18.02.105.28
			as	18.02.105.29
			Rnbrd	18.02.105.28.1—18.02.105.28.4
			as	18.02.105.29.1—18.02.105.29.4
			Added	18.02.105.29.4.1
			Rnbrd	18.02.105.28.5
			as	18.02.105.29.5
			Added	18.02.106.7.1
				18.02.106.8, 18.02.106.9
			Added	18.02.106.9.1
				18.02.106.13, 18.02.106.18
				18.02.107.15.1—18.02.107.15.6
			Added	18.02.108
			Rnbrd	18.02.108
			as	18.02.111
			Rnbrd	18.02.108.1—18.02.108.6
			as	18.02.111.1—18.02.111.6
			Added	18.02.111.6.1, 18.02.111.6.2
			Rnbrd	18.02.108.7
			as	18.02.111.1
			Rnbrd	18.02.108.8—18.02.108.13
			as	18.02.111.8—18.02.111.13
			Rnbrd	18.02.109, 18.02.109.1
			as	18.02.112—18.02.112.1
			Rnbrd	18.02.110
			as	18.02.114
			Rnbrd	18.02.111
			as	18.02.115
18509	5-31-2016	An Ordinance amending Title 18 (Building and Construction), Chapter 18.08 (Building Code), adopting the 2015 International Building Code, and adopting appropriate local amendments, the penalty being as provided in 18.02.111 of the El Paso City Code	1 Rpld	18.08.010—18.08.290
			Added	18.08.020—18.08.300
18510	5-31-2016	An Ordinance amending Title 18 (Building and Construction), Chapter 18.10 (Residential Code), adopting the 2015 International Building Code, and adopting appropriate local amendments, the penalty being as provided in 18.02.111 of the El Paso City Code	1 Rpld	18.10.010—18.10.390
			Added	18.10.010—18.10.400

Ordinance Number	Approval Date	Description	Section	Section this Code
18511	5-31-2016	An Ordinance amending Title 18 (Building and Construction), Chapter 18.12 (Mechanical Code), adopting the 2015 International Building Code, and adopting appropriate local amendments, the penalty being as provided in 18.02.111 of the El Paso City Code	1 Rpld	18.12.010—18.12.100
			Added	18.12.010—18.12.100
18512	5-31-2016	An Ordinance amending Title 18 (Building and Construction), Chapter 18.16 (Electrical Code), adopting the 2015 International Building Code, and adopting appropriate local amendments, the penalty being as provided in 18.02.111 of the El Paso City Code	1 Rpld	18.16.010—18.16.310
			Added	18.16.010—18.16.310
18513	5-31-2016	An Ordinance amending Title 18 (Building and Construction), Chapter 18.20 (Plumbing Code), adopting the 2015 International Building Code, and adopting appropriate local amendments, the penalty being as provided in 18.02.111 of the El Paso City Code	1 Rpld	18.20.010—18.20.250
			Added	18.20.010—18.20.230
18514	5-31-2016	An Ordinance amending Title 18 (Building and Construction), Chapter 18.24 (Gas Code), adopting the 2015 International Building Code, and adopting appropriate local amendments, the penalty being as provided in 18.02.111 of the El Paso City Code	1 Rpld	18.24.010—18.24.120
			Added	18.24.010—18.24.120
18515	5-31-2016	An Ordinance amending Title 18 (Building and Construction), Chapter 18.28 (Existing Building Code), adopting the 2015 International Building Code, and adopting appropriate local amendments, the penalty being as provided in 18.02.111 of the El Paso City Code	1 Rpld	18.28.010—18.28.430
			Added	18.28.010—18.28.250
18516	5-31-2016	An Ordinance amending Title 18 (Building and Construction), Chapter 18.30 (Swimming Pool and Spa Code), adopting the 2015 International Building Code, and adopting appropriate local amendments, the penalty being as provided in 18.02.111 of the El Paso City Code	1 Added	18.30.010—18.30.130
18517	5-31-2016	An Ordinance amending Title 18 (Building and Construction), Chapter 18.50 (Property Maintenance Code), adopting the 2015 International Building Code, and adopting appropriate local amendments, the penalty being as provided in 18.02.111 of the El Paso City Code	1 Rpld	18.50.010—18.50.170
			Added	18.50.010—18.50.170
18518	5-31-2016	An Ordinance amending Title 18 (Building and Construction), Chapter 18.70 (Energy Conservation Code), adopting the 2015 International Building Code, and adopting appropriate local amendments, the penalty being as provided in 18.02.111 of the El Paso City Code	1 Rpld	18.70.010—18.70.020
			Added	18.70.010—18.70.160
18519	5-31-2016	An Ordinance amending Title 9 (Health and Safety), Chapter 9.52, (Fire Prevention Code) adopting the 2015 International Fire Code, the penalty being as provided in Section 9.52.030 of the City Code	1	9.52.020

Ordinance Number	Approval Date	Description	Section	Section this Code
18520	5-31-2016	An Ordinance releasing all conditions placed on property by ordinance no. 8848 and 15972 which changed the zoning of a portion of Lot 3, Block 46, Sun Ridge Subdivision Unit 12, 2110 N. Zaragoza Road, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 2110 N. Zaragoza Road		Omitted
18521	5-31-2016	An Ordinance changing the zoning of a portion of Tract 2, Coronado Place, 110 Coronado Road, City of El Paso, El Paso County, Texas from C-3 (Commercial) Tormu (Residential-Mixed Use), approving a Master Zoning Plan. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 110 Coronado Road		Omitted
18522	5-31-2016	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.150 (Schedule XIV - Speed Limits), paragraph H (45 MPH) and paragraph I (50 MPH) of the El Paso City Code, to reduce the speed limit from 50 MPH to 45 MPH on portions of FM 659 (Zaragoza Rd.), the penalty being as provide in Chapter 1.08 (General Penalty) of the El Paso City Code	1	12.88.150 H.27
			2 Rpld	12.88.150 I.5
18523	6-14-2016	An Ordinance granting Special Permit No. PZST16-00008, to allow for a ground-mounted 65' Personal Wireless Service Facility on the property described as a portion of Lot 6, Block 261, Vista Del Sol Unit Fifty, 1500 Lomaland Drive, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.455 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 1500 Lomaland Drive. Property Owner: El Paso Six Storage 18 (TX) LLC. PZST16-00008		Omitted
18524	6-14-2016	An Ordinance granting Special Permit No. PZST16-00003 to allow for infill development with a reduction in side street yard setback and a parking reduction on the property described as a portion of Lot 6, Block 2, Rough Riders Subdivision, 1201 Zaragoza, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280, Infill Development of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 1201 Zaragoza. Property Owner: Martin & Maria Beltran. PZST16-00003		Omitted
18525	6-14-2016	An Ordinance granting Special Permit No. PZST15-00038, to allow for Infill Development with reduced side street yard setback on the property described as Lot 14, Block 389, Tierra Del Este #69, 14504 Long Shadow Avenue, City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 14504 Long Shadow Avenue. Property Owner: Juan and Raquel Garcia. PZST15-00038		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18526	6-14-2016	An Ordinance vacating a 0.0029 acre public utility easement legally described as a portion of Lot 14, Block 389, Tierra del Este Unit Sixty Nine, City of El Paso, El Paso County, Texas. Subject Property: East of Zaragoza South of Edgemere. Property Owner: Juan Garcia SUET16-00001		Omitted
18527	6-14-2016	An Ordinance changing the zoning of the property described as All of Lot 8, Block 6, Hueco View Acres, 11400 & 11410 Edgemere Blvd., City of El Paso, El Paso County, Texas from G-MU (General Mixed Use) to S-D (Special Development), approving a Detailed Site Development Plan pursuant to Section 20.04.150 and 20.10.360 of the El Paso City Code to allow for the expansion of the apartment complex and the addition of a new building (39,336 sq. ft./36 new units) as permitted in the S-D (Special Development) zone district. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: Property 11400 & 11410 Edgemere Blvd. Owner: Ardent Quest Apartments LLC. PZRZ16-00003		Omitted
18528	6-14-2016	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.56 (Parking Meters), Section 12.56.020 (Installation), Subsection F, to add an exception to the regular hours of parking meters fees on a portion of North Coldwell St.; the penalty being as provided in Chapters 12.84 (Violation - Penalty) and 12.85 (Parking Violations) of the El Paso City Code	1 Added	12.56.020.F.8.
18529	6-14-2016	An Ordinance granting Special Permit No. PZST16-00002, to allow for a Ground-mounted 68' Personal Wireless Service Facility on the property described as a portion of Lots 1 and 2, Block 109, Morningside Heights, 4801 Dyer Street, City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.455 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 4801 Dyer Street. Property Owner: Mohammed Farokhnia. PZST16-00002		Omitted
18530	6-28-2016	An Ordinance authorizing the issuance of City of El Paso, Texas, Water and Sewer Revenue Improvement and Refunding Bonds, Series 2016 in an amount not to exceed $81,625,000 for system improvements and to refund certain previously issued obligations of the City; and resolving matters which are necessary to effect such issuance, Including the delegation of matters relating to the sale and issuance of the bonds to an authorized City Officer or Employee within certain specified parameters		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18531	6-28-2016	An Ordinance amending Title 20 (Zoning), Chapter 20.02 (Definitions) to revise the definition of the Natural Open Space Zoning District and to add additional definitions; Chapter 20.06 (Zoning Districts and Map) to revise the purpose of the Natural Open Space Zoning District; Chapter 20.08 (Permissible Uses) to revise the Table of Permissible Uses for the Natural Open Space Zoning District; Chapter 20.10 (Supplemental Use Regulations) to clarify and add supplemental use regulations; Chapter 20.16 (Screening and Fencing) to modify screening and fencing standards; Chapter 20.18 (Sign Regulations) to add signage standards for Natural Open Space Districts of the El Paso City Code. The penalty is as provided for in Chapter 20.24 of the El Paso City Code	1	20.02.651
			2 Added	20.02.032.5
			Added	20.02.171
			Added	20.02.171.5
			Added	20.02.171.7
			Added	20.02.691
			3	20.06.020.D.13
			4	Tit. 20, App. A
			5	20.10.385
			6	20.10.730.A, B
			7	20.16.020.D, G
			8	20.18.410(tit.)
18532	6-28-2016	An Ordinance granting Special Permit No. PZST16-00007, to allow for infill development with a 34 percent parking reduction, and rear/side setback reduction on the property described as Lots 11 through 16, inclusive, Block 17, Supplemental Map No. 1 of East El Paso, 2921 Alameda Ave., City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 2921 Alameda Ave. Property Owner: E.P. Marcus Investments, L.P. PZST16-00007		Omitted
18533	6-28-2016	An Ordinance granting Special Permit No. PZST16-00004, to allow for infill development with a reduction in side yard setback, parking reduction, and density bonus on the property described as the north 130 feet of Lot 27, Block 5, Stiles Gardens, 409 Bucher, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 409 Bucher. Property Owner: Maria A. Chavez De Goytia. PZST16-00004		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18534	6-28-2016	An Ordinance granting Special Permit No. PZST15-00034, to permit a Group Residential Facility on the property described as Tract 3B1, Block 42, Ysleta Grant, 216 Emma Way, City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.265 Group Residential Facilities of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 216 Emma Way. Property Owner: Bertha Patricia Solis. PZST15-00034		Omitted
18535	6-28-2016	An Ordinance amending Title 12, Chapter 12.88 (Schedules), Section 12.88.030 (Schedule III - Parking prohibited at all times on certain streets), to add Hawthorne Street from Rim Road to West Schuster Avenue, both sides, and West Schuster Avenue to Crosby Avenue, west side only, the penalty being as provided in Section 12.84.010 and Chapter 12.85 of the El Paso City Code, to restrict parking on the University of Texas at El Paso (UTEP) campus	1 Added	12.88.030.380
18536	7-12-2016	An ordinance amending the future land use map contained in "Plan El Paso" for the property legally described as a Portion of Section 48, Block 79, Township 2, Texas and Pacific Railway Company Surveys, El Paso County, Texas, and a Portion of Section 18, Block 78, Township 2, Texas and Pacific Railway Company Surveys, El Paso County, Texas from O5 Remote to G4 Suburban (Walkable). (PLCP16-00002)		Omitted
18537	7-12-2016	An ordinance annexing the following real property described as a portion of Section 18, Block 78, and portion of Section 48, Block 79, Township 2, Texas and Pacific Railway Company Surveys, El Paso County, Texas. Subject Property: East of John Hayes and North of Montwood; Applicant: Ranchos Real Land Holding, LLC SUAX16-00001		Omitted
18538	7-12-2016	An Ordinance changing the zoning of the following Parcels: Parcel 1: A Portion of Section 48, Block 79, Township 2, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas, from R-F (Ranch & Farm) to C-2 (Commercial); and, Parcel 2: A Portion of Section 48, Block 79, Township 2, Texas and Pacific Railway Company Surveys, Annexed as Parcel 1, City of El Paso, El Paso County, Texas, and A Portion of Section 48, Block 79, Township 2, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas, from R-F (Ranch & Farm) to R-5 (Residential); and, Parcel 3: A Portion of Section 48, Block 79, Township 2, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County Texas, From R-F (Ranch & Farm) to C-2 (Commercial); and, Parcel 4: A Portion of Section 18, Block 78, Township 2, Texas and Pacific Railway Company Surveys, Annexed as Parcels 3 And 4, City of El Paso, El Paso County, Texas, and A Portion of Section 18, Block 78, Township 2, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County Texas, from R-F (Ranch & Farm) to R-5 (Residential), The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: Property East of John Hayes and South of Pebble Hills Blvd. Owner: Rancho Real Land Holdings, LLC. PZRZ16-00009		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18539	7-12-2016	An Ordinance changing the zoning of a portion of Lot 20, Block 1, International Industrial Center Unit 1, 1115 Airway Boulevard, City of El Paso, El Paso County, Texas from P-I (Planned Industrial) to C-4 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 1115 Airway Boulevard. Property Owner: James A. Dick Co., PZRZ16-00010		Omitted
18540	7-12-2016	An Ordinance amending the 2025 Proposed Thoroughfare System, as incorporated into Plan El Paso, to downgrade the future extension of Charles Foster Avenue from John Hayes Street to the future extension of Tim Floyd Street from a minor arterial to a collector and to add the future extension of Mike Price Drive as a collector form the future extension of Pebble Hills Boulevard to the future extension of Montwood Drive		Omitted
18541	7-19-2016	An Ordinance changing the zoning of Lot 1, Block 1, Shadow Mountain, 201 Shadow Mountain, City of El Paso, El Paso County, Texas from C-1 (Commercial) to G-MU (General Mixed Use); Approving a master zoning plan; and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 201 Shadow Mountain. Property Owner: MG Shadow Mountain, LLC. PZRZ15-00039		Omitted
18542	7-26-2016	An Ordinance changing the zoning of the real property known as: Parcel 1: Lots 1,2,4, and 5, Block 1, Del Mesa Addition, City of El Paso, El Paso County, Texas, From C-2 (Commercial) to C-1 (Commercial); and Parcel 2 & 3: A Portion of Tract 4A, now known as Tract 4C-1, Morehead Block, City of El Paso, El Paso County, Texas, from C-2/sp (Commercial/special permit) and R-4/sp (Residential/special permit) to C-1 (Commercial); and Imposing a Condition that a Detailed Site Development Plan be reviewed and approved in accordance with the El Paso City Code prior to building permits being issued, and repealing Special Permit No. SU-99009 as it pertains to Parcels 2 and 3. The Penalty is as provided for in Chapter 20.24 of the El Paso City Code to allow a new 11,945 sq. ft. Retail Pharmacy Building with Drive-thru. The penalties for violating the standards imposed through this rezoning ordinance are found in Section 20.24 of the El Paso City Code. Subject Property: 5331 Montana Ave.; 5305 Montana Ave.; 1012 Cardon Street. Owner: Parcel 1: El Paso West Airport LTD; Parcel 2 & 3: William Welsh (Executor of the Estate). PZRZ16-00005		Omitted
18543	7-26-2016	An Ordinance amending conditions placed on property by Ordinance No. 16788 which changed the zoning of Lots 1 and 2, Block 1, V.A.L. Tract, City of El Paso, El Paso County, Texas, and which imposed conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Property Owner: El Paso City Employees' Pension Fund. PZCR16-00003		Omitted
18544	7-26-2016	An Ordinance vacating the city right-of-way over a portion of Magnolia Street 70' Right-of-Way lying between Blocks 48 and 49, Bassett Addition, City of El Paso, El Paso County, Texas. SURW16-00001		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18545	7-26-2016	An Ordinance changing the zoning of the property described as lots 18,19 and 20, Block 6, Womble Addition, 6292 Trowbridge Drive, City of El Paso, El Paso County, Texas from R-5 (RESIDENTIAL) to S-D (SPECIAL DEVELOPMENT), pursuant to Section 20.04.360, and approving a detailed site development plan pursuant to Section 20.04.150 and 20.10.360 of the El Paso City Code to allow for a medical office/clinic as permitted in the S-D (Special Development) Zone District. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: South of Trowbridge and East of Geronimo. Property Owner: City of El Paso. PZRZ16-00013		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18546	8- 9-2016	An Ordinance amending Title 6 of the El Paso City Code (Vehicles for Hire); making it applicable to all modes of transportation for hire, to add transportation network company regulations, update definitions, and remove redundant language; revising Chapter 6.04 to rename it (Transportation for Hire), and to add Article I (General Provisions), Article II (Taxicab Operations), Article III (TNC Operations), Article IV (Alternative Transportation-for-Hire), Article V (Sightseeing, Charter, Limousine and Shuttle Operations), Article VI (International Transportation-for-Hire); to update language in Chapter 6.36 (Driverless Automobiles); delete Chapter 6.16 (Taxicabs); delete Chapter 6.20 (International Taxicabs); delete Chapter 6.28 (Sightseeing or Charter Operations); delete Chapter 6.32 (Limousine Service); delete Chapter 6.34 (Nonmotorized Vehicles for Hire); delete Chapter 6.08 (Passenger Buses and Streetcars); delete Chapter 6.12 (Chauffer's License); delete Chapter 6.24 (Jitneys); delete Chapter 6.40 (Emergency and Transfer Ambulance Services); the penalty being as provided in Sections 1.08.010, 1.08.020 and 1.08.030 of the El Paso City Code	1 Rpld	Tit. 6, Ch. 6.04, §§ 6.04.010—6.04.070; Ch. 6.08, §§ 6.08.010—6.08.060; Ch. 6.12, §§ 6.12.010—6.12.130; Ch. 6.16, §§ 6.16.010—6.16.580; Ch. 6.20, §§ 6.20.010—6.20.120; Ch. 6.24, §§ 6.24.010—6.24.030; Ch. 6.28, §§ 6.28.010—6.28.150; Ch. 6.32, §§ 6.32.010—6.32.170; Ch. 6.34, §§ 6.34.010—6.34.160; Ch. 6.36, §§ 6.36.010—6.36.130; Ch. 6.40, §§ 6.40.010—6.40.130
			Added	Tit. 6, Ch. 6.04, §§ 6.04.010—6.04.480; Ch. 6.36, §§ 6.36.010—6.36.130
18547	8- 9-2016	An Ordinance amending Title 9 (Health and Safety), adding Chapter 9.85 (Emergency and Transfer Ambulance Services) as a result of the proposed revisions to Title 6 (Vehicles for Hire) which is where Chapter 6.40 (Emergency and Transfer Ambulance Services) has been located prior to said proposed Title 6 revisions; the penalty being as provided in Sections 1.08.010, 1.08.020 and 1.08.030 of the El Paso City Code	1 Added	Ch. 9.85, §§ 9.85.010—9.85.130
18548	8- 9-2016	An Ordinance amending Title 10 of the El Paso City Code (Public Peace, Morals and Welfare), Chapter 10.24 (Miscellaneous Offenses) to add Section 10.24.050 (Sun Metro Priority Seating); the penalty being as provided in Sections 1.08.010, 1.08.020 and 1.08.030 of the El Paso City Code	1 Added	10.24.050
18549	8- 9-2016	An Ordinance amending Title 12 of the El Paso City Code (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.160 (Schedule XV—City Taxicab Zone) to update references to Title 6 sections; the penalty being as provided in Sections 1.08.010, 1.08.020 and 1.08.030 of the El Paso City Code	1	12.88.160 D., G.
18550	8- 9-2016	An Ordinance amending El Paso City Code Title 14 (Aircraft and Airports), Chapter 14.16 (Airport Use Regulations), to delete Article V (Ground Transportation Taxicab Services) in its entirety; to rename Chapter 14.16, Article III to Chapter 14.16, Article III (Ground Transportation Services) and making it applicable to all modes of ground transportation; the penalty being as provided in Sections 1.08.010, 1.08.020 and 1.08.030 of the El Paso City Code	1 Rpld	Ch. 14.16, Art. III, §§ 14.16.190—14.16.210
			Rnbd	Ch. 14.16, Art. IV
			as	Ch. 14.16, Art. III
			Added	Ch. 14.16, Art. IV, §§ 14.16.401—14.16.407

Ordinance Number	Approval Date	Description	Section	Section this Code
			2 Rpld	Ch. 14.16, Art. V, §§ 14.16.400—14.16.421
18551	8- 9-2016	An Ordinance granting Special Permit No. PZST16-00009, to allow for a ground-mounted 50' Personal Wireless Service Facility on the property described as a portion of Lot 1, Block 67A, Chaparral Park Unit 22, 1020 Belvidere Street, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.455 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 1020 Belvidere Street. Property Owner: Raimundo Portilla F. & Jose Manuel Portilla F. PZST16-00009		Omitted
18552	8- 9-2016	An Ordinance changing the zoning of the property described as Lot 23 and the West ½ of Lot 22 and the East 6.5 feet of Lot 24, Block 92, of East El Paso Addition, 3320 Montana Avenue, City of El Paso, El Paso County, Texas from R-5 (Residential) to S-D (Special Development), Pursuant to Section 20.04.360, and providing a Detailed Site Development Plan Pursuant to Section 20.04.150 and 20.10.360 of the El Paso City Code, and approving a set-back reduction, and waiving the one acre requirement. The Penalty is as provided for in Chapter 20.24 of the El Paso City Code to allow for an office building. Subject Property: 3320 Montana Ave. Owner: Westmount Assets Inc. PZRZ16-00008		Omitted
18553	8- 9-2016	An Ordinance releasing all conditions placed on property by special contract approved on April 14, 1987, which were imposed in the change of zoning of Tracts 12-A and 13-A, Block 51, Ysleta Grant, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 9639 and 9701 Socorro Road. Property Owner: FMA Realty, LLC. PZCR16-00002		Omitted
18554	8- 9-2016	An Ordinance changing the zoning of the following real property known as: Parcel 1: Tract 12-A Block 51, Ysleta Grant, 9639 Socorro Road, City of El Paso, El Paso County Texas from A-2/sc (Apartments/special contract) and C-4/H/sc (Commercial/Historic/special contract) to S-D/sc (Special Development/special contract) And S-D/H/sc (Special Development/Historic/special contract); And, Parcel 2: Tract 13-A, Block 51, Ysleta Grant, 9701 Socorro Road, City of El Paso, El Paso County Texas from C-4/H/sc (Commercial/Historic/special contract) To S-D/H/sc (Special Development/Historic/special contract), pursuant to Section 20.04.360; and imposing conditions; And Approving a Detailed Site Development Plan pursuant to Section 20.04.150 and 20.10.360 of the El Paso City Code to allow for Low-Volume Commercial Retail and Apartment use as permitted in the S-D (Special Development) and S-D/H (Special Development/Historic) Zone Districts. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 9639 and 9701 Socorro Road. Property Owner: FMA Realty, LLC. PZRZ16-00004		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18555	8- 9-2016	An Ordinance authorizing the City Manager to execute a Quitclaim (Tax Resale) Deed conveying to Stacye McClain, all of the right, title, and interest of the City of El Paso, and all other taxing units interested in the tax foreclosure judgment in the following described real property: Lot 24, Block 30, Panorama Village #5, El Paso County, Texas		Omitted
18556	8- 9-2016	An Ordinance authorizing the City Manager to execute a Quitclaim (Tax Resale) Deed conveying to Stacye McClain, all of the right, title, and interest of the City of El Paso, and all other taxing units interested in the tax foreclosure judgment in the following described real property: Lot 25, Block 30, Panorama Village #5, El Paso County, Texas		Omitted
18557	8- 9-2016	An Ordinance adopting the City of El Paso Bike Plan as the official bicycle master plan for the City of El Paso and to incorporate this plan as an addendum to Plan El Paso		Omitted
18558	8-23-2016	An Ordinance amending Ordinance numbers 018064, 018223 and 018402 which amended and updated the Zone Schedule NO. 1, Rates, Rules, Charges and Regulations applying at Foreign Trade Zone NO. 68, El Paso, Texas; to revise the fee for the Foreign Trade Zone Operations training seminar as listed in the Tariff Schedule; and to revise the Tariff Schedule		Omitted
18559	8-23-2016	An Ordinance granting a Special Privilege License to Hestra, LLC for the construction, installation, maintenance, use, and repair of sixteen (16) angled parking spaces within portions of City right-of-way along Mills Avenue and Willow Street adjacent to the property located at 2020 East Mills Avenue, El Paso, Texas for a term of five years with one (1) renewable five year term. (NESV2016-00016, District 8)		Omitted
18560	8-23-2016	An Ordinance granting Special Permit No. PZST16-00010, to allow for a ground-mounted 66' Personal Wireless Service Facility on the property described as a portion of Lot 1, Block 1, Radco Industrial Park, City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.455 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 11400 Wilkinson Dr. Property Owner: Noe S. Castillo PZST16-00010		Omitted
18561	8-23-2016	An Ordinance granting until August 22, 2019, a non-exclusive franchise to "Sun City Advertisements" to place and maintain up to 150 waste containers on sidewalks and other City property within the City of El Paso, subject to the terms and conditions described in the ordinance		Omitted
18562	8-23-2016	An Ordinance granting until August 22, 2019, a non-exclusive franchise to "Denise's Easy Enterprises LLC" to place and maintain up to 150 waste containers on sidewalks and other City property within the City of El Paso, subject to the terms and conditions described in the ordinance		Omitted
18563	8-23-2016	An Ordinance granting until August 22, 2019, a non-exclusive franchise to "VALU Advertising" to place and maintain up to 150 waste containers on sidewalks and other City property within the City of El Paso, subject to the terms and conditions described in the ordinance		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18564	8-23-2016	An Ordinance levying 2017 taxes		Omitted
18565	9- 6-2016	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.56 (Parking Meters), Section 12.56.020F (Installation) of the El Paso City Code to authorize the International Bridges Director to recommend Parking Meter Day and Time Exceptions to City Council; to delete Section 12.56.020F.2 regarding the Free Saturday Downtown Parking Exception; and to amend Section 12.56.070 (Applicability of Proceeds), Subsection 12.56.070A to designate the use of certain Downtown Parking Meter Revenues; the penalty as provided for in Section 12.80.240 of the El Paso City Code	1	12.56.020 F.
			2	12.56.070 A.
18566	9- 6-2016	An Ordinance amending the Final Project Plan and Final Reinvestment Zone Financing Plan for Tax Increment Reinvestment Zone Number Five, City of El Paso, Texas; adopting said amendments as required by Section 311.011(E) Texas Tax Code; also providing a severability clause		Omitted
18567	9- 6-2016	An Ordinance amending Title 12 (Vehicles and Traffic)—Chapter 12.80 (Miscellaneous Traffic Regulations)—Section 12.80.030 (Coasters, Roller Skates, and Similar Devices—Use Restrictions) to permit the use of roller devices and to prohibit the use of said devices on surfaces not intended for pedestrian or vehicular traffic. The penalty being as provided in Section 1.08.010 of the El Paso City Code	1	12.80.030
18568	9- 6-2016	An Ordinance granting a non-exclusive franchise to Affordable Roll-off, Inc., to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the franchise terms and conditions; the penalty as provided in Section 9.04.630 of the El Paso City Code		Omitted
18569	9- 6-2016	An Ordinance granting a non-exclusive franchise to Southwest Disposal to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the franchise terms and conditions; the penalty as provided in Section 9.04.630 of the El Paso City Code		Omitted
18570	9- 6-2016	An Ordinance changing the zoning of All of Tract 456 and a portion of Tract 455, Sunrise Acres No. 1, 9025 Neptune Street, located in the City of El Paso, El Paso County, Texas from R-4 (Residential) to S-D/c (Special Development/condition), and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 9025 Neptune Street. Property Owner: Miguel De La Riva, Jr., PZRZ16-00012 (District 2)		Omitted
18571	9- 6-2016	An Ordinance approving a major amendment to the Master Zoning Plan approved on April 21, 2009, by Ordinance No. 17111 which also rezoned a portion of Lot 1, Block 1, City View Subdivision, 1700 E. Cliff Drive, City of El Paso, El Paso County, Texas from C-3/sc (Commercial/special contract), C-1 (Commercial), and A-O (Apartment/Office) to GMU (General Mixed Use). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 1700 E. Cliff Drive. Property Owner: GECU. PZRZ16-00017 (District 8)		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18572	9- 6-2016	An Ordinance authorizing the City Manager to execute a Quitclaim (Tax Resale) Deed conveying to Soluciones Financieras Metro, LLC (SFM), all of the right, title, and interest of the City of El Paso, and all other taxing units interested in the tax foreclosure judgment in the following described real property: Lots 25 and 26, Block "D", Grandview Addition, an Addition to the City of El Paso, El Paso County, Texas, as described in Volume 894, Page 350, Deed Records of El Paso County, Texas		Omitted
18573	9-20-2016	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.52 (Parking Restrictions on Certain Streets), Section 12.52.020 (Parking Prohibited At All Times); Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.030 (Parking prohibited at all times on certain streets); and Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.180 (No stopping or standing—Tow-away zone), Paragraph A (No parking or standing, Tow-away zone) of the El Paso City Code, to prohibit parking around the San Jacinto Plaza	1	12.52.020
			2, 3	12.88.030
			4 Rpld	12.88.180 A.34, 36, 44, 68
18574	9-20-2016	An Ordinance amending Title 5 (Business License And Permit Regulations), Chapter 5.10 (Tattooing And Body Art Studio Registration And Artist License), Section 5.10.120 (Inspection), Subsection 5.10.120E of the El Paso City Code, in order to authorize a fee for re-Inspection; the penalty as provided in Section 5.10.180 of the El Paso City Code	1	5.10.120 E.
18575	9-20-2016	An Ordinance vacating the city rights-of-way known as Abdou Road, Hernandez Drive, Jaffe Street, Fox Drive lying within French Farm Addition, City of El Paso, El Paso County, Texas. Subject Property: South of Paisano and West of Val Verde; Applicant: The Housing Authority of the City of El Paso. SURW16-00004		Omitted
18576	9-20-2016	An Ordinance amending Title 3 (Revenue and Finance), Chapter 3.32 (Abandoned, Lost, Stolen and Unclaimed Property), Section 3.32.100 (Disposition of Animals), to correct the assigned department from Department of Public Health to Department of Animal Services	1	3.32.100
18577	9-20-2016	An Ordinance amending Title 10 (Public Peace, Morals and Welfare), Chapter 10.12 (Offenses Against Public Peace), Section 10.12.010 (Firearms—Discharge Prohibited), Subsection 10.12.010C to correct the assigned department from Department of Public Health to Department of Animal Services; the penalty as provided in Section 1.08.010 and 1.08.030 of the El Paso City Code	1	10.12.010 C.
18578	10- 4-2016	An Ordinance amending The Final Project Plan And Final Reinvestment Zone Financing Plan For Tax Increment Reinvestment Zone Number Five, City Of El Paso, Texas; Adopting Said Amendments As Required By Section 311.011(E) Texas Tax Code; also providing a severability clause		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18579	10- 4-2016	An Ordinance changing the zoning of a portion of Lot 2, Block 4, Kessler Industrial District Unit 2, 988 Kessler Drive, City of El Paso, El Paso County, Texas from P-I (Planned Industrial) to C-4/c (Commercial/condition), and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 988 Kessler Drive. Property Owner: Instituto de Fomento Familiar Inc. PZRZ16-00001		Omitted
18580	10- 4-2016	An Ordinance granting a non-exclusive franchise to Smartt Move, LLC, to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the franchise terms and conditions		Omitted
18581	10- 4-2016	An Ordinance permitting the City to Rebate Development Projects up to $10,000.00 in certain development fees for projects awarded an Incentive Agreement under the City's Infill Development Incentive Policy or the Transit Oriented Development Policy and repealing Ordinances 017457, 017828, and 017954 which allowed for a Waiver Of Certain Development Fees for The City's Infill Development Incentive Policy And The Sustainable City Center Incentive Policy		Omitted
18582	10-18-2016	An Ordinance authorizing the issuance of $100,000,000 of City of El Paso, Texas, Water and Sewer Revenue Bonds, Series 2016A to the Texas Water Development Board in order to finance the acquisition of water resources for the system; and enacting provisions related thereto		Omitted
18583	10-18-2016	An Ordinance changing the zoning of Tract 10-B, Block 33, Ysleta Grant, 100 Cinecue Way, City of El Paso, El Paso County, Texas from C-3 (Commercial) to S-D/C (Special Development/Condition), and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code		Omitted
18584	10-18-2016	An Ordinance granting to River Elms, LLC a non-exclusive franchise for waste containers on sidewalks and other City property		Omitted
18585	10-18-2016	An Ordinance releasing all conditions placed on property by Ordinance No. 7367 and 8457 which changed the zoning of all of Tract 1B1, S.J. Larkin Survey 266, and a portion of Tracts 60, 61A and all of tract 62A, W.H. Glenn Survey 241, 6450 North Desert Boulevard, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code		Omitted
18586	11- 1-2016	An Ordinance granting Special Permit No. PZST16-00019, to allow for infill development with reduced side street yard setback on the property described as Lots 31 & 32, Block 7, Morningside Heights Addition, 3300 Jackson Avenue, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Property Owner: Terry Sanchez. PZST16-00019		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18587	11- 1-2016	An Ordinance granting Special Permit No. PZST16-00020, to allow for infill development with reduced side street yard setback, rear yard setback and cumulative front and rear yard setback on the property described as Lot 1, Block 1, Scotsdale Unit Two, 9958 Lockerbie Avenue, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Property Owner: Richard and Ingrid Moreno. PZST16-00020		Omitted
18588	11- 1-2016	An Ordinance changing the zoning of Lot 4 and the west half of Lot 5, Block 16, Franklin Heights Addition, 1108 Myrtle Ave., City of El Paso, El Paso County, Texas from C-4/H (Commercial/Historic) to R-MU/H (Residential Mixed-Use/Historic) and approving a Master Zoning Plan. The Penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 1108 Myrtle Ave.; Owner: Bemity Global LLC. PZRZ16-00015		Omitted
18589	11- 1-2016	An Ordinance amending Title 20 (Zoning), Chapter 20.02 (Definitions), Section 20.02.426 (Group Residential Facility); and Chapter 20.10 (Supplemental Use Regulations), Section 20.10.265 (Group Residential Facilities), and Section 20.10.270 (Home Occupation Use) to clarify size and licensing requirements for these uses. The penalty is as provided for in Chapter 20.24 (Enforcement-Penalty) of the El Paso City Code	1	20.02.426
			2	20.10.265 A.
			3 Rpld	20.10.270 B.14
18590	11- 1-2016	An Ordinance amending Title 20 (Zoning), Chapter 20.18 (Sign Regulations), Article III (Billboard Regulations), Section 20.18.270 (Relocation of Billboards) to revise the height requirements for relocated billboards; the penalty being as provided for in Chapter 20.24 of the El Paso City Code	1	20.18.270 E.12
18591	11- 1-2016	An Ordinance amending Ordinance 018564 (Ordinance levying 2017 taxes) to correct a scrivener's error		Omitted
18592	11- 1-2016	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.180 (No Stopping or Standing—Tow Away Zone), paragraph A (No Parking or Standing, Tow Away Zone), of the El Paso City Code, 106. Pendale, Road, the penalty being as provided in section 12.88.180(F) of the El Paso City Code	1	12.88.180 A.106
18593	11- 1-2016	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.030 (Schedule III—Parking prohibited at all times on certain streets), to prohibit parking along a portion of Manor Place, the penalty being as provided in section 12.88.180(F) of the El Paso City Code	1 Added	12.88.030 385.
18594	11- 1-2016	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.180 (No stopping or standing—Tow-away zone), El Paso City Code, to delete Subsection K (Parking restrictions on Hopewell Drive, Mettler Drive, and Sunburst Drive), the penalty being as provided in section 12.85	1 Rpld	12.88.180 K.

Ordinance Number	Approval Date	Description	Section	Section this Code
18595	11-15-2016	An Ordinance changing the zoning of Tract 233 and 234, Maps of Sunrise Acres, 8725 South Gateway Boulevard, City of El Paso, El Paso County, Texas from R4 (Residential) and A-O/c (Apartment/Office/condition) to S-D/c (Special Development/condition), and imposing an additional condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 8725 South Gateway Boulevard. Property Owner: SKRH, LLC. PZRZ16-00023		Omitted
18596	11-15-2016	An Ordinance granting Special Permit No. PZST16-00018, to allow for a hotel on the property described as Tracts 233 and 234, Maps of Sunrise Acres, 8725 South Gateway Boulevard, City of El Paso, El Paso County, Texas, Pursuant to Section 20.04.260 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 8725 South Gateway Boulevard. Property Owner: SKRH, LLC. PZST16-00018		Omitted
18597	11-15-2016	An Ordinance amending Title 21 (Smartcode), Chapter 21.50 (Building Scale Plans), Section 21.50.140 (Architectural Standards), of the El Paso City Code, to amend the architectural standards for roof design to calibrate the design to the local character of the place and local conditions; the penalty is as provided for in Chapter 21.60 of the El Paso City Code	1	21.50.140 A.6
			2	21.50.140 B.5
			3	21.50.140 D.7
18598	11-15-2016	An Ordinance changing the zoning of Lots 17 and 18, Block 28, Supplemental Map No. 1 of East El Paso, 223 Luna Street, City of El Paso, El Paso County, Texas from A-3 (Apartment) to C-3 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 223 Luna Street. Property Owner: Synergy Project Consultants, Inc. PZRZ16-00025		Omitted
18599	11-15-2016	An Ordinance amending Ordinance 8065 (Civil Service Rules and Regulations), to amend Rule No. 8 to revise Section 8 addressing Formal Counseling		Omitted
18600	11-15-2016	Amend Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.180 (No stopping or standing-Tow-away zone) to restrict parking on JC Cramer Lane, the penalty being as provided in section 12.88.180(F) of the El Paso City Code	1 Added	12.88.180 A.113
18601	11-29-2016	An Ordinance granting Special Permit No. PZST16-00022, to allow for infill development with a reduction in the required parking on the property described as Lot 1, Block 1, Sherman Subdivision Replat A, 4531 Blanco Avenue, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Property Owner: Housing Authority of the City of El Paso. PZST16-00022		Omitted
18602	11-29-2016	An Ordinance granting a non-exclusive franchise to A-1 Disposal, to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the franchise terms and conditions		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18603	11-29-2016	An Ordinance granting a non-exclusive franchise to Alareal Corporation d/b/a Bin There Dump that, to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the franchise terms and conditions		Omitted
18604	11-29-2016	An Ordinance granting a non-exclusive franchise to American Disposal Services, to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the franchise terms and conditions		Omitted
18605	11-29-2016	An Ordinance granting a non-exclusive franchise to Anvaco Corporation, to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the franchise terms and conditions		Omitted
18606	11-29-2016	An Ordinance granting a non-exclusive franchise to Demcon Disposal Management, LLC, to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the franchise terms and conditions		Omitted
18607	11-29-2016	An Ordinance granting a non-exclusive franchise to El Paso Disposal, LP, to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the franchise terms and conditions		Omitted
18608	11-29-2016	An Ordinance granting a non-exclusive franchise to El Paso Sanitation Systems, Inc., to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the franchise terms and conditions		Omitted
18609	11-29-2016	An Ordinance granting a non-exclusive franchise to GCC Sun City Materials, LLC, to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the franchise terms and conditions		Omitted
18610	11-29-2016	An Ordinance granting a non-exclusive franchise to Heist Disposal, Inc., to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the franchise terms and conditions		Omitted
18611	11-29-2016	An Ordinance granting a non-exclusive franchise to Jose Roman Gonzalez, JR dba JRG Disposal, to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the franchise terms and conditions		Omitted
18612	11-29-2016	An Ordinance granting a non-exclusive franchise to Loretto Investment Corporation, to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the franchise terms and conditions		Omitted
18613	11-29-2016	An Ordinance granting a non-exclusive franchise to Moore Service, Inc., to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the franchise terms and conditions		Omitted
18614	11-29-2016	An Ordinance granting a non-exclusive franchise to Sandoval Capital, Inc. D/B/A Bronco Disposal, to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the franchise terms and conditions		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18615	11-29-2016	An Ordinance granting a non-exclusive franchise to Smartt Move, LLC, to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the franchise terms and conditions		Omitted
18616	11-29-2016	An Ordinance granting a non-exclusive franchise to Southwest Disposal, to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the franchise terms and conditions		Omitted
18617	12- 6-2016	An Ordinance amending Title 9 (Health and Safety), by adding Chapter 9.20 (Social Host Accountability Ordinance), which allows for a civil penalty imposed upon a responsible adult for a gathering where alcohol is provided to minors; the penalty being as provided in Section 9.20.070 of the El Paso City Code	1 Added	9.20.010—9.20.110
18618	12- 6-2016	An Ordinance changing the zoning of the West 11 Feet of Lot 4, and all of Lots 5, 6, and 7, Block 115 Amended Map of Morning Side Heights, City of El Paso, El Paso County, Texas from R-4 (Residential) to A-2 (Apartment). The penalty is provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 3335 Truman. Property Owner: Moises Ortiz PZRZ16-00030		Omitted
18619	12- 6-2016	An Ordinance changing the zoning of Tracts 27-D-1, 27-D-2, and 27-D-3, Section 9, Block 81, Township 2, Texas and Pacific Railroad Company Surveys, 4922 Hondo Pass Drive, City of El Paso, El Paso County, Texas from C-1 (Commercial) to C-2/c (Commercial/condition) and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 4922 Hondo Pass Drive. Property Owner: 2015 Hondo Village Center, LLC. PZRZ16-00018		Omitted
18620	12- 6-2016	An Ordinance changing the zoning of a portion of Tract 5B, Section 36, Block 80, Township 2, Texas and Pacific Railway Company Surveys, 11120 Montana Avenue, City of El Paso, El Paso County, Texas from R-3 (Residential) to C-3 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 11120 Montana Avenue. Property Owner: Mohammed R. Farokhnia. PZRZ16-00029		Omitted
18621	12- 6-2016	An Ordinance vacating a portion of City right-of-way over a portion of Ochoa Street out of Block 169, Alexander Addition, City of El Paso, El Paso County, Texas. Subject Property: East of Ochoa and North of University; Applicant: Maria Del Carmen and Daniel A. Casavantes SURW16-00006		Omitted
18622	12- 6-2016	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.20 (Traffic Control Devices), Section 12.20.060 (Signal legend—Go, Caution and Stop), Subsection (C)(1)(c) (at the following intersection left turns on the red signal are prohibited), of the El Paso City Code, to add the intersection on Campbell Street and Yandell Drive, the penalty being as provided in Section 12.84.010 of the El Paso City Code	1	12.20.060 C.1.c

Ordinance Number	Approval Date	Description	Section	Section this Code
18623	12-20-2016	An Ordinance granting a Special Privilege License to International Laundry Services, Inc., for the construction, installation, maintenance, use, and repair of six angled on-street parking spaces and one loading dock within portions of City right-of-way along St. Vrain Street service road adjacent to the property located at 817 Texas Avenue, El Paso, Texas for a term of ten years with one renewable ten year term. (NESV2015-00012)		Omitted
18624	12-20-2016	An Ordinance changing the zoning of All of Lot 2 and a portion of Lot 3, Block 9, Canutillo Industrial Park, 7351 South Desert Boulevard, City of El Paso, El Paso County, Texas from C-3/c (Commercial/condition) to I-MU/c (Industrial mixed use/condition) and approving a master zoning plan. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 7351 South Desert Boulevard. Property Owner: Abram Wiebe Dyck and Aganetha Fehr Hildebrand. PZRZ15-00008		Omitted
18625	1-24-2017	An Ordinance changing the zoning of the South of 65 ft. of Lot 205 and all of Lot 206, Sunrise Acres No. 2, 4805 Apollo Drive, City of El Paso, El Paso County, Texas from R-4 (Residential) to R-MU (Residential-Mixed Use), and approving a master zoning plan. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 4805 Apollo Drive. Property Owner: Zima Properties. PZRZ16-00032		Omitted
18626	2- 7-2017	An Ordinance changing the zoning of East 80.5 feet of Lot 149, Sunrise Acres No. 2, 4752 Atlas Avenue, City of El Paso, El Paso County, Texas from R-4 (Residential) to A-2/c (Apartment/condition) and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 4752 Atlas Avenue. Property Owner: Porfirio Guevara. PZRZ16-00036		Omitted
18627	2- 7-2017	An Ordinance amending Title 19 (Subdivision and Development Plats), Article 1. Platting Procedures, Chapter 19.01 (Provisions applicable to all platting procedures), Section 19.01.030 (Exemptions) to broaden certain platting exemptions, Chapter 19.06 (Minor Plats), Section 19.06.050 (Expiration) to amend the approving official, Article 4. Specific Application and Processing Requirements, Chapter 19.42 (Enforcement, Penalty and Revocation of Permits), Section 19.42.040 (Stop Work Orders), Article 5. Relief Procedures, Chapter 19.46 (Proportionality Appeal), Section 19.46.040 (Processing of Appeals and Decision) to designate the City Manager as the responsible official, of the El Paso City Code; the penalty being as provided for in Chapter 19.42 of the El Paso City Code	1	19.01.030 12.
			2	19.06.050
			3	19.42.040 A, D
			3	19.46.040 A, B

Ordinance Number	Approval Date	Description	Section	Section this Code
18628	2- 7-2017	An Ordinance vacating a 0.002 acre portion of Paseo Del Norte Boulevard right-of-way, a 0.033 acre portion of Paseo Del Norte Boulevard right-of-way, a 0.002 acre portion of Paseo Del Norte Boulevard right-of-way, and a 0.110 acre portion of Resler Drive right-of-way, City of El Paso, El Paso County, Texas. Subject Property: East of Northwestern & North of Paseo del Norte SURW16-00003		Omitted
18629	2- 7-2017	An Ordinance vacating a portion of city right-of-way over Manor Place and Alameda Avenue, City of El Paso, El Paso County, Texas. Subject Property: South of Alameda and West of Carolina. SURW16-00002		Omitted
18630	2- 7-2017	An Ordinance terminating the Denise's Easy Enterprises LLC non-exclusive franchise for waste containers on sidewalks and other City property		Omitted
18631	2- 7-2017	An Ordinance terminating the Sun City Advertisements non-exclusive franchise for waste containers on sidewalks and other City property		Omitted
18632	2-28-2017	An Ordinance of the City Council of the City of El Paso, Texas, designating a noncontiguous geographic area within the city as a reinvestment zone pursuant to Chapter 311 of the Texas Tax Code, to be known as reinvestment zone number eight, City of El Paso; Describing the boundaries of the zone; creating a board of directors for the zone; establishing a tax increment fund for the zone; containing findings related to the creation of the zone; providing a date for the termination of the zone; providing that the zone take effect immediately upon passage of the ordinance; providing a severability clause; and providing an effective date		Omitted
18633	2-28-2017	An Ordinance changing the zoning of Lot 1, Block 76, Vista Del Sol Unit Seventeen, 2211 Trawood Drive, City of El Paso, El Paso County, Texas from R-3 (Residential) to A-O (Apartment/Office). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 2211 Trawood Drive. Property Owner: Sun City Capital, LLC. PZRZ16-00039		Omitted
18634	2-28-2017	An Ordinance granting Special Permit No. PZST16-00028, to allow for infill development and detailed site development plan review to allow for a front and rear cumulative setback reduction from the required 100 ft. to 82.27 ft. on the property described as Lot 6, Block 2, Emerald Valley Estates Replat, 5512 Milray Dr., City of El Paso, El Paso County, Texas. Pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 5512 Milray Dr. Property Owner: Jeremy & Melissa Ryan PZST16-00028		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18635	2-28-2017	An Ordinance granting Special Permit No. PZST16-00023, to allow for infill development with a reduction in side yard setback, rear yard setback, and cumulative front and rear yard setback and a reduction in lot area and lot width requirements on the property described as Lot 35, save and except a portion thereof, plus a portion of Lot 36, Block 21, Kern Place Addition, 904 Park Road, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Property Owner: Rosaline Stevenson. PZST16-00023		Omitted
18636	2-28-2017	An Ordinance changing the zoning of the property described as the East 14 feet of Lot 13 and all of Lot 14, Block 108, East El Paso Addition, 3427 Montana Avenue, City of El Paso, El Paso County, Texas from R-5 (Residential) to S-D (Special Development), pursuant to Section 20.04.360 and approving a detailed site development plan pursuant to Section 20.04.150 and 20.10.360 of the El Paso City Code to allow for professional office as permitted in the S-D (Special Development) zone district. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 3427 Montana Avenue. Property Owner: Carlos Camarillo. PZRZ16-00037		Omitted
18637	2-28-2017	An Ordinance vacating a portion of City right-of-way over a portion of Cliff Drive adjacent to Lot 1, Block 1, City View Subdivision, City of El Paso, El Paso County, Texas. Subject Property: South of Cliff and West of Cotton; Applicant: El Paso Rehab, L.P. SURW16-00008		Omitted
18638	3- 7-2017	An Ordinance allowing the City Manager to sign a correction instrument and a correction quitclaim deed to correct a scriveners error in the quitclaim deed signed as a result of the vacation of a portion of City right-of-way under Ordinance 018621. Subject Property: East of Ochoa and North of University; Applicant: Maria Del Carmen and Daniel A. Casavantes SURW16-00006		Omitted
18639	3- 7-2017	An ordinance vacating a 0.22 acre public easement, legally described as a portion of Bucher Road released and quitclaimed and reserved as a public easement under Ordinance No. 7428, also known as a portion of Lot 1, Block 1, Palmdale Acres Unit Two, an addition to the City of El Paso, El Paso County, Texas. Subject Property: North of North Loop and West of Hawkins; Applicant: Casas Por Cristo SUET16-00002		Omitted
18640	3- 7-2017	An Ordinance amending Ordinance 8065 (Civil Service Rules and Regulations), to amend Rule 1, Section 2 relating to the Office of the Civil Service Commission Secretary		Omitted
18641	3- 7-2017	An Ordinance amending Ordinance 8065 (Civil Service Rules and Regulations), to amend Rule nos. 5 and 12 to remove reference to efficiency points and rating, and Rule no. 7 to clarify when a performance review may be appealed		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18642	3- 7-2017	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.010 (One-Way Streets), to amend Campbell Street, northbound between Loop 375, the Border Highway, and Schuster Avenue of the El Paso City Code to Campbell Street, northbound between East Seventh Avenue and Schuster Avenue	1	12.88.010 2.
18643	3- 7-2017	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.010 (One-Way Streets), to amend Kansas Street, southbound between Schuster Avenue and Loop 375 of the El Paso City Code to Kansas Street, Southbound between Schuster Avenue and East Seventh Avenue	1	12.88.010 1.
18644	3- 7-2017	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.010 (One-Way Streets), to delete the following location on Ninth Avenue, westbound between Mesa Street and Oregon Street of the El Paso City Code	1, 2 Rpld	12.88.010 81.
18645	3-21-2017	An Ordinance amending the Final Project Plan and the Final Reinvestment Zone Financing Plan for the Tax Increment Reinvestment Zone Number Five, City of El Paso, Texas; Adopting Said Amendments as required by Section 311.011(E) Texas Tax Code; also providing a severability clause		Omitted
18646	3-21-2017	An Ordinance changing the zoning of the real property known as: Being all of Tract 3, J.L. Johannsen Survey No. 185, City of El Paso, El Paso County, Texas, from R-3 (Residential) to S-D (Special District) Pursuant to Section 20.04.360, and providing a Detailed Site Development Plan Pursuant to Section 20.04.150 and 20.10.360 of the El Paso City Code. The Penalty is as provided for in Chapter 20.24 of the El Paso City Code to allow for Other Retail (low-volume), Professional Offices, & Self-Storage Warehouses. Subject Property: 5980 Johannsen Rd. Owner: Johannsen Development Group, Inc. PZRZ16-00019		Omitted
18647	3-21-2017	An Ordinance granting Special Permit No. PZST16-00034, to allow for infill development and detailed site development plan review to allow for a ballroom on the property described as Lot 1, Block 1, Desert Heaven Estates, City of El Paso, El Paso County, Texas. A ballroom use is not a permitted use in C-1 or C-2 (Commercial) district; however, it is a permitted use in C-2 (Commercial) zone district with a rezoning request (PZRZ16-00031). Pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 280 Ysleta Ln. Property Owner: D'Roman LLC. PZST16-00034 (District 6)		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18648	3-21-2017	An Ordinance changing the zoning of the real property known as Lot 1, Block 1, Desert Heaven Estates, City of El Paso, El Paso County, Texas, from C-1 (Commercial) to C-2 (Commercial). The Penalty is as provided for in Chapter 20.24 of the El Paso City Code to allow for a ballroom. A ballroom use is not a permitted use in C-1 or C-2 (Commercial) district; however, it is a permitted use in C-2 (Commercial) zone district with a Special permit application (PZST16-00034). The penalties for violating the standards imposed through this rezoning ordinance are found in Section 20.24 of the El Paso City Code. Subject Property: 280 Ysleta Ln. Owner: D'Roman LLC. PZRZ16-00031 (District 6)		Omitted
18649	3-21-2017	An ordinance amending Title 19 (Subdivision and Development Plats), Article 2. Subdivision Standards, Chapter 19.18 (Traffic Impact Analysis), Section 19.18.010 (Purpose and Applicability) of the El Paso City Code, to allow for deferral of a traffic impact analysis to the platting stage of development under certain circumstances. The penalty is as provided for in Chapter 19.42 of the El Paso City Code. (All Districts)	1	19.18.010 B.4
			Added	19.18.010 B.5
18650	3-21-2017	An Ordinance granting Special Permit No. PZST16-00036, to permit a group residential facility and parking reduction on the property described as the north 100 feet of Tract 151, Sunrise Acres No. 2, 7715 Mt. Latona Drive, City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.265 Group Residential Facilities of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 7715 Mt. Latona Drive. Property Owner: Francisca Morales and Pedro Morales. PZST16-00036 (District 2)		Omitted
18651	3-21-2017	An Ordinance releasing conditions placed on property by Ordinance No. 9348 which changed the zoning of Tract 23-G, Block 54, Ysleta Grant, 8736 Gateway East Boulevard, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 8736 Gateway East Boulevard. Property Owner: Teton River Properties, LLC. PZCR16-00008 (District 7)		Omitted
18652	3-21-2017	An Ordinance amending Title 20 (Zoning), Chapter 20.04 (Administrative Provisions), Article VI (Changes and Amendments), Section 20.04.380 (Application Requirements) of the El Paso City Code, to revise the requirements for a traffic impact analysis under certain circumstances. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. (All Districts)	1	20.04.380 G
18653	3-21-2017	An Ordinance vacating a portion of City right-of-way over a portion of the alley between Raynolds St. and Concepcion St., Block 3, Val Verde Addition, City of El Paso, El Paso County, Texas. Subject Property: South of I-10 and East of Raynolds; Applicant: Texas Tech University Health Sciences Center at El Paso. SURW17-00001		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18654	3-21-2017	An Ordinance amending Title 13 (Streets, Sidewalks and Public Spaces), Chapter 13.24 (City Parks and Recreation Areas), Section 13.24.050 (Use of Athletic Fields) of the El Paso City Code, to add a Section governing permit required fields and to clarify the use of game only fields. The penalty is provided in Chapter 13.24.220 of the El Paso City Code	1	13.24.050 A
			2	13.24.050 B
			3 Added	13.24.050 C
18655	4- 4-2017	An Ordinance granting Special Permit No. PZST16-00035, to allow for parking spaces serving another property on the property described as Lot 9, Block 5, North Loop Gardens, Unit 1, 7812 West Drive, City of El Paso, El Paso County, Texas, and imposing conditions pursuant to Section 20.04.260 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 7812 West Drive. Property Owner: Francisco Antonio Leyva. PZST16-00035		Omitted
18656	4- 4-2017	An Ordinance changing the zoning of the property described as Lots 31 & 32, Block 92, Supplemental Map No. 1 of East El Paso, 3300 Montana Avenue, City of El Paso, El Paso County, Texas from R-5 (Residential) to S-D (Special Development), pursuant to Section 20.04.360 and approving a detailed site development plan pursuant to Section 20.04.150 and 20.10.360 of the El Paso City Code to allow for a side street setback reduction for mixed use of office, retail, and residential as permitted in the S-D (Special Development) zone district. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 3300 Montana Avenue. Property Owner: Will Dylan Investments, Inc. PZRZ16-00043		Omitted
18657	4- 4-2017	An Ordinance vacating a portion of City right-of-way over a portion of 0.180 Acre Tract of land situated in the C. M. Whitaker Survey, Abstract 2863, El Paso County, Texas; said Tract being part of a certain deed conveyed to the City of El Paso recorded in Volume 636 Page 386, D.R.E.P.C.T.; and being a 15 ft. wide alley and a 16 ft. wide alley in Block 33, Summit Place Addition, and located East of Piedras Street and North of Taylor Avenue, City of El Paso, Texas. Subject Property: East of Piedras and North of Taylor; Applicant: El Paso Water Utilities/Public Service Board SURW16-00009		Omitted
18658	4- 4-2017	An Ordinance annexing the following real property described as a portion of Davidson Blvd., out of Hill Crest Estates, El Paso County, Texas. Subject Property: East of John Hayes at Edgemere Boulevard; Applicant: El Paso County SUAX14-00001		Omitted
18659	4- 4-2017	An Ordinance annexing the following real property described as a portion of Augusta Lane, out of Hill Crest Estates, El Paso County, Texas. Subject Property: East of John Hayes and North Edgemere; Applicant: El Paso County. SUAX15-00002		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18660	4- 4-2017	An Ordinance granting Special Permit No. PZST15-00008, to allow for infill development with reduced lot area, lot width, lot depth, and cumulative front & rear yard setback reductions on the property described as a portion of Lot 32, Block 5, Alameda Acres, 409 S. Glenwood Street, City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 409 S. Glenwood Street. Property Owner: ANVIA, L.L.C. PZST15-00008		Omitted
18661	4-18-2017	An Ordinance amending the Future Land Use Map contained in "Plan El Paso" for the properties legally described as Lot 1 and a portion of Lot 2, Block 1, Rocket Warehouse Park Unit Three, and Tract 7-C, Section 31, Block 80, Township 1, Texas & Pacific Railway Company Survey, City of El Paso, El Paso County, Texas		Omitted
18662	4-18-2017	An Ordinance changing the zoning of a portion of Lots 1 and 2, Block 1, Rocket Warehouse Park Unit Three, City of El Paso, El Paso County, Texas from C-4 (Commercial) to P-R I (Planned-Residential I). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: West of Dyer Street and at the end of Ameen Avenue. Property Owner: Northtowne Village Joint Venture and Van E. Scott. PZRZ16-00042		Omitted
18663	4-18-2017	An Ordinance amending Title 20 (Zoning), Chapter 20.10 (Supplemental Use Regulations), Section 20.10.680 (Temporary Uses) of the El Paso City Code, to amend the temporary places of assembly section to clarify requirements for temporary assembly uses occurring on undeveloped lots and to require City Council approval for events held on property zoned Ranch Farm when more than 500 people will be in attendance. The penalty is as provided for in Chapter 20.24 of the El Paso City Code	1	20.10.680 C.3
18664	4-18-2017	An Ordinance vacating a 0.476 acre portion of a Public Service Board easement, legally described as an existing twenty (20.00) feet P.S.B. easement out of West Desert Marketplace Subdivision, located south of Montoya Lane and West of I-10, El Paso, El Paso County, Texas. Subject Property: South of Montoya Lane and West of I-10; Applicant: Prime Desert Properties, L.L.C.		Omitted
18665	4-18-2017	An Ordinance amending Title 18 (Building and Construction), Chapter 18.18 (Outdoor Lighting Code), Article X (Other Exemptions) to revise and add exemptions related to ornamental lighting elements along certain heritage corridors. The penalty is provided for in Chapter 18.18.400 of the El Paso City Code	1 Rpld	18.18.377
			Added	18.18.377

Ordinance Number	Approval Date	Description	Section	Section this Code
18666	4-18-2017	An Ordinance authorizing the City Manager to execute a Quitclaim (Tax Redemption) Deed conveying all right, title, and interest in real property described real property as 0.837 acres, more or less, being Tract 52-d, Tract 53-b, Tract 54-d, and Tract 55-a, Nellie D. Mundy Survey 241, an Addition to the City of El Paso, El Paso County, Texas as described in Volume 735, Page 1311, real property records of El Paso County, Texas, to Elizabeth Royer, in accordance with Section 34.21 of the Texas Tax Code		Omitted
18667	4-18-2017	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.190 (No Stopping or Standing at any time), of the El Paso City Code, Paragraph A.3, to amend the west side of Luna Street from Copper Avenue to Federal Avenue and from Wheeling to Aurora Avenue, the penalty being as provided for in Section 12.88.191, Subsection (C) of the El Paso City Code	1	12.88.190 A.3
18668	5- 2-2017	An Ordinance approving a Project and Financing Plan for Tax Increment Reinvestment Zone Number Eight, City of El Paso, Texas; making various findings related to such plan; providing for severability; and providing an effective date		Omitted
18669	5- 2-2017	An Ordinance to amend Title 12 (Vehicles & Traffic), Chapter 12.54 (Towing Regulations and Fees), Section 12.54.020, to amend the maximum fees that may be charged within the City for nonconsent vehicle tows	2	12.54.020 A.1
18670	5- 2-2017	An Ordinance granting a franchise for Life Ambulance Service, Inc. to operate a non-emergency ambulance transfer service		Omitted
18671	5- 2-2017	An Ordinance granting a franchise for Elite Medical Transport of Texas, LLC to operate a non-emergency ambulance transfer service		Omitted
18672	5- 2-2017	An Ordinance granting a franchise for Dominion Ambulance, LLC to operate a non-emergency ambulance transfer service		Omitted
18673	5- 2-2017	An Ordinance granting Special Permit No. PZST16-00033, to allow for infill development with reduced rear yard setback and cumulative front and rear yard setback on the property described as Lot 18, Block 2, Dolphin Terrace Unit 2, 5901 Dolphin Drive, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Property Owner: Reynaldo & Sylvia Garcia. PZST16-00033		Omitted
18674	5- 2-2017	An Ordinance granting Special Permit No. PZST16-00024, to allow for infill development with reduced rear yard setback, and increased density, and parking reduction on the property described as a portion of Lot 36, Block 32, Vista Del Sol Unit Six Replat B, 1709 Lomaland Drive, City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 1709 Lomaland Drive. Property Owner: Guillermo Martinez. PZST16-00024		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18675	5- 2-2017	An Ordinance granting Special Permit No. PZST17-00005, to allow for infill development with reduced front yard setback and cumulative front & rear yard setbacks on the property described as Lot 10, Block 3, Amen Corner Amending Subdivision, 5008 Amen Corner Drive, City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 5008 Amen Corner Drive. Property Owner: Aber Investments, LLC. PZST17-00005		Omitted
18676	5- 2-2017	An Ordinance amending Title 18 (Building and Construction), Chapter 18.46 (Landscape Code), Article II (Design Requirements) to amend and add requirements related to landscaping for high hazard group (h), storage group (s), and utility (u) occupancy classifications, as defined in the International Building Code, in manufacturing and industrial zoning districts. The penalty is as provided for in Chapter 18.18.400 of the El Paso City Code	1	18.46.080 A.1
			2	18.46.090 A.6
			3 Added	18.46.090 A.7
18677	5-16-2017	An Ordinance granting Special Permit No. PZST16-00025, to allow for infill development and detailed site development plan review to allow for a rear set back reduction from 10 ft. to 8 ft., a front and rear cumulative setback reduction from the required 45 ft. to 30.35 ft., and side setback reduction from the required 5 ft. to 0 to accommodate an existing home addition and storage on the property described as Lots 1, 2, and 3, Block 8, Home Improvement Co., Subdivision, City of El Paso, El Paso County, Texas. Pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 146 S. Schutz Dr. Property Owner: Lawson Zeroy & Letha F PZST16-00025		Omitted
18678	5-16-2017	An Ordinance changing the zoning of Lots 40-43, Block 2, Zach White Industrial, 4610 Doniphan Drive, City of El Paso, El Paso County, Texas from P-l (Planned Industrial) to C-4 (Commercial), and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 4610 Doniphan Drive. Property Owner: Reality Properties, LLC. PZRZ16-00006		Omitted
18679	5-16-2017	An Ordinance vacating a portion of Avalon Drive right-of-way and a 20' alley out of Cielo Vista Amended Plat, City of El Paso, El Paso County, Texas. Subject property: East of Airway and north of Edgemere; Applicant: E.P. Simana SURW15-00013		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18680	5-16-2017	An Ordinance of the City Council of the City of El Paso, Texas designating a geographic area within the City as a reinvestment zone pursuant to Chapter 311 of the Texas Tax Code to be known as Reinvestment Zone Number Nine, City of El Paso; describing the boundaries of the Zone; creating a Board of Directors for the Zone; establishing a tax increment fund for the Zone; containing findings related to the creation of the Zone; providing a date for the termination of the Zone; providing that the Zone take effect immediately upon passage of the ordinance; providing a severability clause; and providing an effective date		Omitted
18681	5-16-2017	An Ordinance amending Title 18 (Building and Construction), Chapter 18.60 (Flood Damage Prevention), Article II (Definitions), Section 18.60.060 (Flood Control Definitions) to amend and add the definition of Base Flood Elevation (BFE). The penalty is provided for in Chapter 18.60.240 of the El Paso City Code	1	18.60.060
18682	5-30-2017	An Ordinance granting a Special Privilege License to El Paso Shopping District, LLC for the placement and use of one (1) non-motorized corn roaster and one (1) vending table within portions of City right-of-way along Fourth Street adjacent to the property located at 620 South El Paso Street on Friday, Saturday and Sunday year-round from 8:00 AM to 8:00 PM and permitting the exclusive use of City parking meter space E4-101 for operation of the roaster during said hours		Omitted
18683	5-30-2017	An Ordinance granting a Special Privilege License to 101 El Paso Street, LP, a Delaware Limited Partnership, for the maintenance, use, and repair of one (1) existing subterranean basement and one (1) existing subterranean parking area under portions of City right-of-way along San Francisco Street, El Paso Street, San Antonio Avenue and their intersections adjacent to the property located at 101 South El Paso Street, El Paso, Texas; setting the license term for each of these encroachments; and waiving the associated annual fee during said terms		Omitted
18684	5-30-2017	An Ordinance granting a license to United States General Services Administration (Licensee) for construction and operation of security enhancements and other structures on a portion of City right-of-way located on city-owned improvements abutting the Ysleta Land Port of Entry (Ysleta LPOE) that are necessary to support the Department of Homeland Security, Customs and Border Protection's (DHS-CBP) inspection of inbound vehicular traffic, at no cost to the City		Omitted
18685	5-30-2017	An Ordinance granting a license to United States General Services Administration (Licensee) for construction and operation of security enhancements and other structures on a portion of City right-of-way located on city-owned improvements abutting the Paso Del Norte Port of Entry ("PDN LPOE") that are necessary to support the Department of Homeland Security, Customs and Border Protection's (DHS-CBP) inspection of inbound vehicular traffic, at no cost to the City		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18686	5-30-2017	An Ordinance changing the zoning of the real property known as a Portion of Tract 1B4, S.J. Larkin Survey 266, City of El Paso, El Paso County, Texas from R-3A (Residential) to C-2 (Commercial). The Penalty is as provided for in Chapter 20.24 of the El Paso City Code to allow for Professional Office. The proposed use is currently not permitted in an R-3A (Residential) district, therefore necessitating the change of zoning to C-2 (Commercial). The penalties for violating the standards imposed through this rezoning ordinance are found in Chapter 20.24 of the El Paso City Code. Subject Property: Corner of Helen of Troy and Rosenbaum; Owner: Hunt Communities GP, LLC; PZRZ16-00026 (District 1)		Omitted
18687	5-30-2017	An Ordinance amending Title 20 (Zoning), Chapter 20.02 (General Provisions and Definitions), Article II (Definitions) to modify definitions for types of shopping centers, and Chapter 20.18 (Sign Regulations) Article IV (On-Premises Sign Regulations) Section 20.18.450 (C-2, C-3, C-4, Q, M-1, M-2 and M-3 Districts) to modify monument sign regulations for shopping centers; the penalty being as provided for in Chapter 20.24 of the El Paso City Code	1	20.02.864, 20.02.866, 20.02.868, 20.02.870, 20.02.871
			2	20.18.450 A
18688	5-30-2017	An Ordinance amending Title 20 (Zoning), Chapter 20.02 (General Provisions and Definitions) to add new definitions for various infill development types, and Chapter 20.10.280 (Infill Development) of the El Paso City Code to amend the requirements for applications for infill development, and the penalty is as provided in Chapter 20.24 of the City of El Paso City Code	1 Added	20.02.149, 20.02.421, 20.02.423, 20.02.471
			2 Rpld	20.10.280
			Added	20.10.280
18689	6-13-2017	An Ordinance amending the Final Project Plan and the Final Reinvestment Zone Financing Plan for the Tax Increment Reinvestment Zone Number Five, City of El Paso, Texas; Adopting Said Amendments as required by Section 311.011(E) Texas Tax Code; also providing a severability clause		Omitted
18690	6-13-2017	An Ordinance amending Title 15 (Public Services), Chapter 15.08 (Street Rentals), Section 15.08.120 (Special Privilege Licenses and Permits), Subsection (H) Exceptions to add Paragraph 19 exempting bicycle racks placed on City right-of-way pursuant to an Interlocal agreement. The penalty is as provided for in Section 15.08.125 of the El Paso City Code	1 Added	15.08.120 H.19

Ordinance Number	Approval Date	Description	Section	Section this Code
18691	6-13-2017	An Ordinance amending Title 9 (Health and Safety), Chapter 9.85 (Emergency and Transfer Ambulance Services), Section 9.85.030 (Cruising Prohibited) to allow for posting of ambulances where not a safety hazard; Subsection 9.85.040 (Definitions) to update the terminology; Section 9.85.050 (Franchise Required) to correct a grammatical error; Section 9.85.060 (Franchise Application - contents) to allow for a license from New Mexico; Section 9.85.080 (Insurance) to update the insurance amounts; and Section 9.85.090 (Attendants and Drivers - requirements) to update certain requirements and to allow for a license from New Mexico; Section 9.85.100 (Ambulance Operations) to clarify how private ambulances should be marked in order to distinguish them from the City's ambulances; Section 9.85.110 (Personnel; Vehicles and Equipment - Standards and Requirements; Inspection) to clarify the vehicle and equipment standards and inspection requirements; and Section 9.85.120 (Private Emergency Service Regulations) to update the terminology; the penalty as provided in Section 9.85.130 of the El Paso City Code	1	9.85.030 A
			2	9.85.040 A—E, I
			3	9.85.050
			4	9.85.060 A.4
			5	9.85.080 B
			6	9.85.090 B, C
			7	9.85.100 A—D
			8	9.85.110 B—D
			9	9.85.120
18692	6-13-2017	An Ordinance changing the zoning of Tract 3, Section 36, Block 80, Township 2, Texas & Pacific Railway Surveys, 11050 Montana Avenue, City of El Paso, El Paso County, Texas from R-3 (Residential) to S-D/c (Special Development/condition), and imposing condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 11050 Montana Avenue. Property Owner: Blanche Abraham Wagner. PZRZ17-00004		Omitted
18693	6-13-2017	An Ordinance granting Special Permit No. PZST17-00004, to allow for Infill Development with reduced lot width and cumulative front & rear yard setbacks on the property described as Lot 14, Block 1, Rose Heaven Addition, 7151 Fatima Avenue, City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 7151 Fatima Avenue. Property Owner: Gabriel Alderete. PZST17-00004		Omitted
18694	6-13-2017	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.150 (Schedule XIV - Speed Limits) to amend by deleting Country Club Road from Doniphan Drive to the west city limits from Subsection (G) and adding the same location to Subsection (F). The penalty being provided in Chapter 1.08 (General Penalty) of the El Paso City Code	1 Rpld	12.88.150 G.1

Ordinance Number	Approval Date	Description	Section		Section this Code
			2	Added	12.88.150 F.101
18695	6-13-2017	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.180 (No stopping or standing - Tow-away zone), Paragraph A, Subparagraph 114, to add a location, Kansas Street from Yandell Drive to Montana Avenue, the penalty being as provided in Section 12.84.010 if the El Paso City Code	1	Added	12.88.180 A.114
18696	6-13-2017	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.1580 (Schedule XIV - Speed Limits), to amend by deleting Subsection (F), Subparagraph (35), Murchison Drive from Medical Center Street to Magnolia Street. The penalty being provided in Chapter 1.08 (General Penalty) of the El Paso City Code	1	Rpld	12.88.150 F.35
18697	6-27-2017	An Ordinance amending Title 18 (Building and Construction), Chapter 18.02.107.15 (Third Party Service Providers), providing for the licensing of Third Party providers, the penalty being as provided in Section 18.46.320 (Violations-Penalty) of the El Paso City Code	1		18.02.107.15—18.02.107.15.6
				Added	18.02.107.15.7
18698	6-27-2017	An Ordinance amending Title 20 (Zoning), Chapter 20.18 (Sign Regulations), Article IV (On Premise Sign Regulations), Section 20.18.400 (General) to amend Regulations for Changeable Electronic Variable Message (CEVM) Signs, Section 20.10.410 (R-F, R-1, R-2, R2-A, R-3, R-3A, R-4, R-5, RMH, PMD, and NOS Districts) to reclassify school and church signs as monument signs, Section 20.18.420 (A-1, A-2, A-3, A-4, A-M, PR-I, PR-II and SRR Districts), and 20.18.430 (A-O, A-3/0 and S-D Districts) to permit monument signs in apartment and certain special purpose districts, and 20.18.490 (Additional On-Premises Signs) to allow for awning and canopy signs in all of the Commercial Zoning Districts	1		20.18.400 A.9.h
			2		20.18.410 C
			3		20.18.420 C
			4		20.18.430 B
			5		20.18.490 B.1.—6.
18699	6-27-2017	An Ordinance granting Special Permit No. PZST17-00007, to allow for a ballroom on the property described as a portion of Lot 1, Block 2, Sunland Business Center, 1057 Doniphan Park Circle, City of El Paso, El Paso County, Texas, Pursuant to Section 20.04.260 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 1057 Doniphan Park Circle. Property Owner: Sunland Business Center Partners, L.P. PZST17-00007			Omitted
18700	6-27-2017	An Ordinance granting Special Permit No. PZST17-00006 to allow for infill development with a reduction in lot width requirements on the property described as Tracts 1-E-1-A and 1-F-1-H, Block 5, Ascarate Grant, 7746 ½ Adobe Drive, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Property Owner: Miguel Rivera. PZST17-00006			Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18701	6-27-2017	An Ordinance granting Special Permit No. PZST16-00027, to allow for infill development with a reduction in side yard setback, side-street yard setback and cumulative side and side-street yard setback requirements on the property described as the East third of the North half of Tract 3, Country Club Acres, 400 Lindbergh Avenue, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Property Owner: Frederick Brightly. PZST16-00027		Omitted
18702	6-27-2017	An Ordinance granting Special Permit No. PZST16-00026, to allow for a ground-mounted 56'-10" Personal Wireless Service Facility on the property described as a portion of Lot 27, Block 2, Bassett Commercial Complex Unit One, 6440 Gateway Boulevard East, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.455 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 6440 Gateway Boulevard East. Property Owner: Gregg Michael Seltzer and Julie Paris Seltzer Trust. PZST16-00026		Omitted
18703	6-27-2017	An Ordinance approving a project and financing plan for Tax Increment Reinvestment Zone Number Nine, City of El Paso, Texas; making various findings related to such plan; providing for severability; and providing an effective date		Omitted
18704	6-27-2017	An Ordinance amending Title 2 (Administration and Personnel) Chapter 2.44 (Courts), Section 2.44.010 (Created), to amend Subsection E to abolish the dual role of Municipal Clerk as City Clerk and Municipal Court Clerk, and to establish the separate role and duties of the Municipal Court Clerk; and to amend Section 2.44.020 (Court of Appeals) by adding Subsection C to identify the City Clerk as the Municipal Appellate Court Clerk	1	2.44.010 E
			2 Added	2.44.020 C
18705	7-11-2017	An Ordinance granting a Special Privilege License to Summit PEI Properties, LLC D/B/A Hotel Indigo for the use of portions of city right-of-way along North Kansas Street adjacent to the property located at 325 North Kansas Street to place an on-street vehicle drop off and pick up zone for use as hotel valet zone for a term of five years with one five-year option to renew		Omitted
18706	7-11-2017	An Ordinance changing the zoning of the property described as a portion of Lot 1, Block 1, City View Subdivision, 1600 E. Cliff Drive and 1621 Golden Hill Terrace, City of El Paso, El Paso County, Texas from G-MU (General-Mixed Use) to S-D (Special Development), Pursuant to Section 20.04.360, and approving a detailed site development plan pursuant to Section 20.04.150 and 20.10.360 of the El Paso City Code to allow for hospital and sanitarium as permitted in the S-D (Special Development) zone district. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 1700 E. Cliff Drive. Property Owner: Cobalt El Paso Land, LLC., and El Paso Rehab. LP. PZRZ17-00007 (District 8)		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18707	1-10-2017	An Ordinance amending Ordinance 8064 (Classification and Compensation Plan) to amend Section 3.6 (Longevity Pay) to comport with the legislative intent of the City Council to pay longevity pursuant to the City's Budget Resolution		Omitted
18708	7-25-2017	An Ordinance authorizing the issuance of "City of El Paso, Texas Tax Notes, Series 2017" in the original principal amount of $3,500,000 for the acquisition of vehicles for public safety and other city vehicles and equipment and resolving matters which are necessary to effectuate the issuance of such Notes		Omitted
18709	7-25-2017	An Ordinance amending a portion of the Northwest Upper Valley Plan, a study area plan incorporated within "Plan El Paso," to calibrate policy recommendations to meet the goals and policies of "Plan El Paso." PLCP16-00003		Omitted
18710	7-25-2017	An Ordinance amending the Future Land Use Map contained in "Plan El Paso" for certain properties within the Northwest Upper Valley Plan area, as identified in exhibit "A", from O-3, Agriculture to G-4, Suburban (Walkable)		Omitted
18711	7-25-2017	An Ordinance releasing a condition imposing a maximum density of 2.5 dwelling units per gross acre, placed on property by Ordinance No. 16704 which changed the zoning from R-F (Ranch and Farm) to PR-I/C (Planned Residential/ Conditions) for Lot 1-H-1, Block 10, Upper Valley, City of El Paso, El Paso County, Texas; and Lot 1-H, Block 10, Upper Valley, City of El Paso, El Paso County, Texas; 6100 Westside Drive. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Property Owner GE Land Development. PZCR16-00006 (District 1)		Omitted
18712	7-25-2017	An Ordinance authorizing the City Manager to execute a quitclaim (tax resale) deed conveying all right, title and interest to Oscar Sanchez, to the following described parcel: Lots 27 and 28, Block 20, Bassett Addition, an Addition to the City of El Paso, El Paso County, Texas, as described in Volume 1207, Page 31, Deed Records of El Paso County, Texas (as 1923 E. San Antonio). And that the City of El Paso, Trustee, acting through its City Manager, hereunto duly authorized by resolution and order of the governing body of said City, which is duly recorded in its official Minutes, hereinafter called grantor, for and in consideration of the sum of $15,600.00 cash in hand paid by Oscar Sanchez		Omitted
18713	8- 8-2017	An Ordinance granting Special Permit No. PZST17-00003, to allow for a 100% parking reduction. The proposed development is to accommodate two-one bedroom apartments and two offices, professional, on the property described as Lot 5 & W. 20' of Lot 4, Block 8, W.B. Woodlawn Addition, City of El Paso, El Paso County, Texas. Pursuant to Sections 20.14.070 Parking Reduction, 20.04.320 Special Permit Approvals, and 20.04.150 Detailed Site Development Plan of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 3722 Alameda Ave. Property Owner: Patricia Juarez PZST17-00003 (District 8)		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18714	8- 8-2017	An Ordinance amending Title 2 (Administration and Personnel), Chapter 2.40 (Department of Museums and Cultural Affairs), Section 2.40.020 (Fees) of the El Paso City Code to provide a discount fee for City of El Paso employees and to identify the new rate in the annual City Budget Resolution	1	2.40.020 A
			2	2.40.020 A.1
			3	2.40.020 A.2
18715	8-22-2017	An Ordinance regulating liquefied petroleum gas within the city's jurisdiction, adopting the Texas Railroad Commission's LP-Gas Safety Rules in conformity with Section 113.054 of the Natural Resources Code, repealing all other ordinances or parts thereof purporting to regulate liquefied petroleum gas within the city's jurisdiction only to the extent that such other ordinances or parts thereof relate to liquefied petroleum gas; and providing a savings clause	1 Rpld	9.52.150
			Added	9.52.150
18716	8-22-2017	An Ordinance granting Special Permit No. PZST17-00014, to allow for Infill Development with lot size and width reductions on the property described as Lot 3, Block 1, Perez Subdivision, 5612 Joe Perez Court, City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 5612 Joe Perez Court. Property Owner: Ricardo Adolfo Benavente, Jr. PZST17-00014 (District 8)		Omitted
18717	8-22-2017	An Ordinance amending Title 15 (Public Services) to create Chapter 15.10 (Deployment of Network Nodes in the Right-of-Way) to establish guidelines, procedures, and a design manual governing network providers' access to public rights-of-way as provided in Chapter 284, Texas Local Government Code	1 Added	Ch. 15.10, §§ 15.10.010—15.10.720
18718	9- 5-2017	An Ordinance authorizing the issuance of "City of El Paso, Texas, Water and Sewer Revenue Improvement and Refunding Bonds, Series 2017," in an amount not to exceed $95,360,000 for System improvements and to refund certain previously issued obligations of the City and resolving matters which are necessary to effect such issuance, including a delegation of authority		Omitted
18719	8-22-2017	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.030 (Schedules III - Parking prohibited at all times on certain streets) to amend by deleting subsections (50) and (256) and amending subsection (49), both sides of Concepcion Street. The penalty being provided in Chapter 1.08 (General Penalty) of the El Paso City Code	1 Rpld	12.88.030 50., 256.
			2	12.88.030 49.
18720	8-22-2017	An Ordinance levying FY 2017-2018 taxes		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18721	9- 5-2017	An Ordinance authorizing the issuance of "City of El Paso, Texas, Municipal Drainage Utility System Revenue Improvement and Refunding Bonds Series 2017," in an amount not to exceed $56,310,000 for System improvements and to refund certain previously issued obligations of the City and resolving matters which are necessary to effect such issuance, including a delegation of authority		Omitted
18722	9- 5-2017	An Ordinance granting Special Permit No. PZST16-00032, to allow for Infill Development with a reduction in lot area, depth, rear yard, and cumulative setback for a duplex in the R-4 (Residential) District and acceptance of the detailed site development plan on the property described as a portion of the east 85 feet of Tract 74, Sunrise Acres Subdivision No. 3, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.180 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. (District 2) PZST16-00032. Owner: Miguel de la Riva Subject Property: 4120 Olympic Ave		Omitted
18723	9- 5-2017	An Ordinance granting Special Permit No. PZST17-00012, to allow for infill development with reductions in the required rear, side yard, and cumulative front and rear setbacks on the property described as Lots 23, 24, and the west 20 feet of Lot 25, Block 38, Summit Place, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. (District 2) PZST17-00012 Owner: Berg Horst Subject Property: 2912 Pierce Ave		Omitted
18724	9- 5-2017	An Ordinance granting Special Permit No. PZST17-00015, to allow for Infill Development with rear, side, and cumulative front & rear yard setback reductions on the property described as being Lot 19 and a portion of Lot 20, Block 100, Austin Terrace Third Supplementary Map as amended of Government Hill Addition, 1700 Radford Street, City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 1700 Radford Street. Property Owner: Scott B. and Jennifer W. Crawford. PZST17-00015 (District 2)		Omitted
18725	9- 5-2017	An Ordinance granting Special Permit No. PZST17-00011, to allow for Infill Development with rear, side, and cumulative front & rear yard setback reductions on the property described as being Lot 27, Block 110, Vista Hills Unit Thirty-Nine, 1950 Paseo Arena Place, City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 1950 Paseo Arena Place. Property Owner: Michiel R. & Elizabeth N. Noe. PZST17-00011 (District 5)		Omitted
18726	9-19-2017	An Ordinance amending Title 10 (Public Peace, Morals and Welfare), Chapter 10.20 (Offenses by or Against Minors), Section 10.20.010 (Definitions) to delete all references related to Special Curfew Hours and Section 10.20.020 (Offenses) to delete Parts B and D	1	10.20.010, 10.20.020

Ordinance Number	Approval Date	Description	Section	Section this Code
18727	9-19-2017	An Ordinance changing the zoning of the real property known as All of Lots 4, 5, 6, 7, 8, 9, 10, and 11, Block 7, Map No. 2 of French Addition, City of El Paso, El Paso County, Texas from R-5 (Residential) to A-O (Apartment-Office) and imposing a condition that Vehicular access from the alley shall be prohibited. The Penalty is as provided for in Chapter 20.24 of the El Paso City Code to allow for a Medical, office. The penalties for violating the standards imposed through this rezoning ordinance are found in Section 20.24 of the El Paso City Code. Subject Property: 4121 E Yandell Dr. Owner: Medven, LLC. PZRZ17-00008 (District 2)		Omitted
18728	9-19-2017	An Ordinance granting Special Permit No. PZST16-00016, to allow for a 32' ground-mounted Personal Wireless Service Facility on the property described as a portion of Lot 1, Block 1, Park West Unit One Replat, 735 S. Mesa Hills Drive, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.455 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 735 S. Mesa Hills Drive. Property Owner: Michael Annabi, Najwa Annabi, Jeffrey Annabi, Jennifer Annabi, Emil Annabi, and Eeman Annabi. PZST16-00016 (District 8)		Omitted
18729	9-19-2017	An Ordinance granting Special Permit No. PZST17-00019, to allow for a 62' ground-mounted Personal Wireless Service Facility on the property described as a portion of Tract 18-B, Block 12, Ysleta, 339 Pendale Road, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.455 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 339 Pendale Road. Property Owner: Mark and Alicia Shaughnessy. PZST17-00019 (District 7)		Omitted
18730	9-19-2017	An Ordinance amending Ordinance 8065 (Civil Service Rules And Regulations), Rule Number 8, Section 3, to Revise the number of days that the City has to conduct an investigation and to issue a Proposed Notice of Disciplinary Action		Omitted
18731	9-19-2017	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.200 (Schedule XVII - Restrictions on parking in residential districts), Subsection Zone F (No parking anytime). The penalty being provided in Chapter 1.08 (General Penalty) of the El Paso City Code	1	12.88.200

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Ordinance Number	Approval Date	Description	Section	Section this Code
18732	10 3-2017	An Ordinance amending Title 9 (Health and Safety), Chapter 9.12 (Food and Food Handling Establishments), Section 9.12.130 (Required), 9.12.140 (Application - Contents), 9.12.150 (Application - Issuance of Food Handler's Receipt - Completion of Required Course Prerequisite to Issuance of Food Handler Certificate), 9.12.170 (Term), 9.12.180 (Renewal), and 9.12.190 (Maintained) and 9.12.210 (Duplicate Issuance) to allow for other proof of completion of a Food Handler Training Course; Subsection 9.12.130B to change the required examination passing threshold, and Subsection 9.12.130C to exclude certain Food Handler Training Courses from the established fee; to add Subsection D to 9.12.140 (Application - Contents); to amend Section 9.12.150 (Application - Contents - Issuance of Food Handler's Receipt - Completion of Required Course Prerequisite to Issuance of Food Handler Certificate) to Clarify the Issuance of a Food Handler's Receipt; and to amend Section 9.12.210 (Duplicate Issuance) to specify that the Issuance of Certain Certificates or other Proof of Food Handling Training Course Completion be handled by the issuing entity; The penalty as provided in Section 9.12.890 of the El Paso City Code	1—3	9.12.130—9.12.150
			4—6	9.12.170—9.12.190
			7	9.12.210
18733	10-17-2017	An Ordinance changing the zoning and removing all conditions on the property by ordinance No. 4721 and No. 18270 of the real property known as Lots 1 & 24, Block 1, Alta Mira Addition, 1200 Chelsea St., City of El Paso, El Paso County, Texas from A-O/sc (Apartment-Office/special contract) & A-O/c (Apartment-Office/condition) to S-D (Special Development), pursuant to section 20.04.360, adding a new condition and approving a detailed site development plan pursuant to section 20.04.150 and 20.10.360 of the El Paso city code to allow for a dwelling, single-family & restaurant (sit-down) as permitted in the S-D (Special Development) zone district. The penalty is as provided for in chapter 20.24 of the El Paso City Code. Subject Property: 1200 Chelsea St. Owner: Nicolaus Maass & Ku Jung, LLC. PZRZ17-00003 & PZCR17-00001 (District 2). This is a 211		Omitted
18734	10-17-2017	An Ordinance finding the proposed improvements in the El Paso Public Improvement District No. 2 (Eastside Sports Complex) are advisable and levying assessments for the cost of such improvements; establishing liens against the property in the District; providing for the collection of the assessment; providing an effective date and closing the hearing of October 17, 2017		Omitted
18735	10-17-2017	An Ordinance granting a non-exclusive franchise to Paul Berube, for waste containers on city property		Omitted
18736	10-31-2017	An Ordinance authorizing the issuance of $50,000,000 of City of El Paso, Texas, Water and Sewer Revenue Bonds, Series 2017A to the Texas Water Development Board in order to finance the acquisition of water resources for the system; and enacting provisions related thereto		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18737	11-14-2017	An Ordinance changing the zoning of the property described as Lot 3, and a portion of Lot 4, Block 5, West Ysleta, 8520 Wingo Way, City of El Paso, El Paso County, Texas from R-4 (Residential) to S-D (Special Development), pursuant to Section 20.04.360, and approving a detailed site development plan pursuant to Section 20.04.150 to allow for a side yard setback reduction, and to allow for an apartment use as permitted in the S-D (Special Development) zone district pursuant to Section 20.10.360 of the El Paso City Code. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 8520 Wingo Way. Property Owner: Guillermo & Carmen Pallares. PZRZ16-00028. This is a 211 case		Omitted
18738	11-14-2017	An Ordinance changing the zoning of the property of a portion of Lot 18, Block 26, Regal Crest Unit Five Replat "A", 851 Thorn Avenue, City of El Paso, El Paso County, Texas from R-3 (Residential) to G-MU (General Mixed Use), approving a Master Zoning Plan. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 851 Thorn Avenue. Property Owner: Church of Grace of El Paso. PZRZ17-00012		Omitted
18739	11-14-2017	An Ordinance changing the zoning of the property of a portion of Nellie D. Mundy Survey 244, City of El Paso, El Paso County, Texas from R-3A (Residential) to P-R I (Planned Residential I). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: North of Transmountain Road and East of Northwestern Drive. Property Owner: DVEP Land LLC. PZRZ17-00017		Omitted
18740	11-14-2017	An Ordinance amending Title 15 (Public Services), Chapter 15.08 (Street Rentals), Section 15.08.120 (Special Privilege Licenses and Permits), to establish on-street bicycle rack placement standards and clarify existing bicycle rack placement regulations on public rights-of-way. The penalty is as provided for in Section 15.08.125 of the El Paso City Code	1	15.08.120 J.6
18741	11-14-2017	An Ordinance authorizing the City Manager to sign a Contract of Sale with Heriberto Miranda for the sale of 0.172 acres, more or less, being a portion of Lot 10, Block 2, Las Casita Unit One and a portion of Lot 11, Block 5, Las Quintas, an addition to El Paso County, Texas		Omitted
18742	11-14-2017	An Ordinance granting the City Manager authority to enter into a temporary Right of Entry with Abrams-Kiewit Joint Venture for the Texas Department of Transportation's Border West Highway Expansion Project to construct project improvements on portions of Delta Drive, Cypress Avenue, 1st Avenue, South Santa Fe Street, South Mesa Street, South Kansas Street, South Park Street, South Campbell Street, 9th Avenue, and South Oregon Street		Omitted
18743	11-28-2017	An Ordinance amending The Master Zoning Plan approved on June 17, 2014, by Ordinance No. 018186 for the rezoning to RMU of Tract 23-A-3 AF Miller Survey No. 214, City of El Paso, El Paso County, Texas, the penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 4 De Leon Drive. Property Owner: Westmount Assets, Inc. PZRZ17-00002		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18744	11-28-2017	An Ordinance approving a Detailed Site Development Plan for a Portion of Lots 1 and 2, Block 1, Rocket Warehouse Park Unit 3, Dyer St. & Ameen Dr., an Addition to the City of El Paso, El Paso County, Texas Pursuant to Section 20.04.150. The Penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: Dyer St. & Ameen Dr. Owner: Bowling, Enterprises, LLC. PZDS17-00030		Omitted
18745	11-28-2017	An Ordinance amending Ordinance 8065 (Civil Service Rules and Regulations), Rule Number 2, Section A, Paragraph 22, providing for the definition of working days		Omitted
18746	11-28-2017	An Ordinance establishing deadlines and procedures for placing matters on the Agenda for city council Meetings and Repealing Ordinance No. 18031	1, 2 Rpld	2.06.010—2.06.060
			Added	2.06.010—2.06.110
18747	12-12-2017	An Ordinance approving a detailed site development plan for Lot 18, Block 16, The Willows Unit 5, 4664 Globe Willow Drive, City of El Paso, El Paso County, Texas, to allow for a reduction of the rear yard setback, pursuant to Section 20.10.360. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 4664 Globe Willow Drive. Property Owners: Dennis and Katherine Robbins. PZDS17-00034		Omitted
18748	12-12-2017	An Ordinance granting a Special Permit PZST17-00009, to allow for Infill Development with a reduction in lot width on the property described as All of Tract 6C, Block 15, 620 Lomaland Dr., Ysleta Grant, City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The Penalty being provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 620 Lomaland Dr. Owner: Christopher Kangur PZST17-00009		Omitted
18749	12-19-2017	An Ordinance of the city council of El Paso, Texas, designating a noncontiguous geographic area within the city as a reinvestment zone pursuant to Chapter 311 of the Texas Tax Code, to be known as Reinvestment Zone Number Ten		Omitted
18750	12-19-2017	An Ordinance authorizing the City Manager to sign a lease with Texas Tech University Health Sciences Center at El Paso for the lease of the AB Fall Mansion at 1725 Arizona Ave. El Paso, El Paso County, Texas for a one year term at a rental rate of $1 per year and with three one-year options to extend the term		Omitted
18751	1- 9-2018	An Ordinance changing the zoning of Lots 17 to 28, Block 14, Franklin Heights Addition, 1101 Texas Avenue, City of El Paso, El Paso County, Texas, and Lots 29 to 32, Block 14, Franklin Heights Addition, 1125 Texas Avenue, City of El Paso, El Paso County, Texas from M-1 (Light Industrial) to C-4 (Commercial). The penalty is as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 1101 Texas Avenue and 1125 Texas Avenue. Property Owner: Great River Commercial, LLC. PZRZ17-00018		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18752	1- 9-2018	An Ordinance granting Special Permit No. PZST17-00029, to allow for Infill Development with 100% Parking Reduction and Reductions in Rear Yard Setback from 10 feet to 0 feet and Side Street Yard Setbacks from 10 feet to 0 feet on the property described as Lots 17 to 28, Block 14, Franklin Heights Addition, 1101 Texas Avenue, City of El Paso, El Paso County Texas, and Lots 29 to 32, Block 14, Franklin Heights Addition, 1125 Texas Avenue, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 1101 Texas Ave and 1125 Texas Ave. Property Owner: Great River Commercial LLC. PZST17-00029		Omitted
18753	1- 9-2018	An Ordinance granting Special Permit No. PZST17-00034, to allow for a 75' Ground-mounted Personal Wireless Service Facility on the property described as a portion of Tracts 13, 13A, & 14, Section 32, Block 79, Township 2, T&P RY CO Surveys, 12000 Montana Avenue, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.455 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 12000 Montana Avenue. Property Owner: Mega U Pull LLC. PZST17-00034		Omitted
18754	1- 9-2018	An Ordinance changing the zoning of the property legally described as Lots 25 & 26, Block 2, Bassett Commercial Complex Unit One, City of El Paso, El Paso County, Texas from A-O (Apartment/Office) District to S-D (Special Development) District, pursuant to Section 20.04.360, and approving a Detailed Site Development Plan and reducing the rear yard setback pursuant to Section 20.04.150 and 20.10.360 of the El Paso City Code to allow for retail use as permitted in the S-D (Special Development) Zone District. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 6416 Gateway Boulevard East. Property Owner: Kart Hadasht Holdings, LLC. PZRZ17-00005		Omitted
18755	2- 6-2018	An Ordinance changing the zoning of A Portion of Lot C, Block 79, Eastwood Heights, Unit L, 2115 Wedgewood Dr., an addition in the City of EL Paso, El Paso County, Texas from C-1/sc (Commercial/special contract) to G-MU/Special contract (General Mixed Use/ special contract) and approving a Master Zoning Plan. The penalty is as provided for in Chapter 20.24 of the El Paso City Code to accommodate an establishment of mixed uses to include Car wash/self-serve, Other retail establishment (low-volume), Office, & office/storage. The penalties for violating the standards imposed through this rezoning ordinance are found in Section 20.24 of the El Paso City Code. Subject Property: 2115 Wedgewood Dr. Owner: Dominguez Properties LTD. PZRZ17-00010		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18756	2-20-2018	An Ordinance amending the Final Project Plan and Final Reinvestment Zone Financing Plan for Tax Increment Reinvestment Zone Number Five, City of El Paso, Texas, to provide four million dollars in TIRZ funding to the Sun City Lights Paseo de las Luces Project; adopting said amendments as required by section 311.011 (e) Texas Tax Code; also providing a severability clause		Omitted
18757	2-20-2018	An Ordinance amending the Future Land Use Map contained in "Plan El Paso" for certain properties located South of Trawood Drive and West of Lee Trevino Drive, as identified in Exhibit "A", from O1, Preserve, to G4, Suburban. Property Owner: Vista Hills Country Club. PLCP17-00007		Omitted
18758	2-20-2018	An Ordinance changing the zoning of A Portion of Tract 1X, Block 1, Ascarate Grant, 2210 Trawood Dr., City of El Paso, El Paso County, Texas from R-F (Ranch-farm) to P-R1 (Planned Residential). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 2210 Trawood Dr. Owner: Vista Hills Country Club. PZRZ17-00021		Omitted
18759	2-20-2018	An Ordinance changing the zoning of Lots 13, 14, and 15, Block 4, Collins Worth Subdivision Supplemental Map, 6110 Alameda Ave. an Addition to the City of El Paso, El Paso County, Texas from R-4 (Residential) & C-4 (Commercial) to C-4 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 6110 Alameda Ave. Property Owner: Armando & Juan Olivas PZRZ17-00023		Omitted
18760	2-20-2018	An Ordinance granting a Special Privilege license to the Board of Regents of the University of Texas System for the maintenance, use, and repair of portions of 18 existing surface parking spaces encroaching 3,511 square feet within portions of city right-of-way along Oregon Street adjacent to the property located at 2701 North Oregon Street		Omitted
18761	3- 6-2018	An Ordinance amending Title 12 (Vehicles and Traffic) to create a new Chapter 12.58 (Parking Benefit Districts) to establish a parking benefit district program and to amend Chapter 12.88 (Schedules) to create a new Section 12.88.230 (Schedule XX—Parking Benefit Districts) to create new parking benefit districts and the boundaries for those districts.	1 Added	Ch. 12.58, 12.58.010—12.58.080
			2 Added	12.88.230
18762	3- 6-2018	An Ordinance creating the Uptown Parking Benefit District; and amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.230 (Schedule XX—Parking Benefit Districts) to add the Uptown Parking Benefit District	5	12.88.230

Ordinance Number	Approval Date	Description	Section	Section this Code
18763	3- 6-2018	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.56 (parking meters), Section 12.56.020 (Installation), amending Subsection C, as well as Section 12.56.030 (Parking space designation—Use), Section 12.56.040 (Operation—Time limits), Section 12.56.050 (Use of slugs unlawful), and Section 12.56.070 (Applicability of proceeds) to remove tokens as a method of payment and to extend the applicability of proceeds from 2025 until 2042 for the central traffic district and the south El Paso district; and amending Section 12.56.020 (Installation) Subsection F to update the boundaries of the uptown parking benefit district, to reinsert an inadvertently removed exception to the regular hours of parking meter fees on a portion of North Coldwell Street, and to provide an exception to the fee along a portion of Cincinnati Avenue; the penalty being as provided in Section 12.84.010 (Violation—Penalty) of the El Paso City Code.	1	12.56.020 C, F
			2	12.56.030 D
			3	12.56.040 A—D
			4	12.56.050
			5	12.56.070
18764	3- 6-2018	An Ordinance changing the zoning of the property described as Tracts 15C and 15D, Block 16, Ysleta Grant, 600 Hampton Rd. City of El Paso, El Paso County, Texas from R-F (Ranch-Farm) to S-D (Special Development), pursuant to Section 20.04.360, and approving a Detailed Site Development Plan pursuant to Section 20.04.150, and Section 20.10.360 of the El Paso City Code to allow for Other retail establishment (low-volume) as permitted in the S-D (Special Development) zone district. The Penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 600 Hampton Rd. Owner: Mirna M. Rivera PZRZ15-00040 related to PZCR15-00007		Omitted
18765	3- 6-2018	An Ordinance releasing all conditions placed on the property by Ordinance No. 011074, which changed the zoning of Tract 14A, Block 16, Ysleta Grant, 475 Yarbrough Dr., City of El Paso, El Paso County, Texas. The Penalty being provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 475 Yarbrough Dr. Owner: Lino Carrera PZCR15-00007 related to PZRZ15-00040		Omitted
18766	3- 6-2018	An Ordinance granting Special Permit No. PZST16-00006, to allow for infill development with reduced cumulative front & rear yard setbacks on the property described as Lots 2-16, Block 1, and Lots 1-24, Block 2, Sereno Valley Estates, City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: North of Tyler Seth Avenue and East of Westside Drive. Property Owner: Palo Verde Development, LLC. PZST16-00006		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18767	3- 6-2018	An Ordinance changing the zoning of a portion of Lot 1, Block 5, Tierra Commercial Unit Five, City of El Paso, El Paso County, Texas from C-2/c (Commercial/condition) to C-3/c (Commercial/condition). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: East of Zaragoza and North of Pebble Hills. Property Owner: River Oaks Properties, LTD. PZRZ17-00026		Omitted
18768	3- 6-2018	An Ordinance granting Special Permit No. PZST17-00024, to allow for parking spaces (serving another property) and imposing conditions on the property described as Lot 21, Block 2, revised map of Buena Vista Addition, 3469 Magdalena Avenue, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.240 of the El Paso City Code. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 3469 Magdalena Avenue. Property Owner: Rosa's Restaurant, LLC. PZST17-00024 THIS A 211 CASE		Omitted
18769	3- 6-2018	An Ordinance for a second amendment to the lease granting the University of Texas El Paso the use of a single duct in a portion of the City's existing underground conduit system to provide an additional route for lessee's fiber on the designated conduit route leased to lessee (Route No. 3). As consideration, the annual lease fee ($2,764.54) paid by lessee shall remain the same		Omitted
18770	3-20-2018	An Ordinance changing the zoning of Tracts 23 and 24, Block 52, Ysleta Grant, 9735 Joe Rodriguez Drive and 800 Southside Road, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) to M-1 (Light Manufacturing). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 9735 Joe Rodriguez Drive and 800 Southside Road. Property Owners: Maria De Jesus Velazco. PZRZ17-00030		Omitted
18771	3-20-2018	An Ordinance amending Title 20 (Zoning), Chapter 20.22 (Nonconforming Situations), amending Section 20.22.080 Property affected by right-of-way acquisition to allow for properties affected by right-of-way acquisitions to be exempt from certain zoning regulations and to register as legal nonconforming. The penalty is as provided for in Chapter 20.04 of the El Paso City Code	1 Rpld	20.22.080
			Added	20.22.080
18772	3-20-2018	An Ordinance amending Ordinance No. 016090, which granted a franchise to El Paso Electric Company, (as amended by Ordinance No. 017460) which increased the street rental charge) to increase street rental charge		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18773	4- 3-2018	An Ordinance vacating a 0.1078 acre tract of land situated in the Simeon Hart Survey, Abstract number 43, City of El Paso, El Paso County, Texas, said tract being part of that unnamed area shown as public road 25 foot wide according to Old Fort Bliss Addition, City of El Paso, El Paso County, Texas, and a 0.5070 acre tract of land situated in the Simeon Hart Survey, Abstract number 43, City of El Paso, El Paso County, Texas, said tract being part of that unnamed area shown as public road 25 foot wide according to Old Fort Bliss Addition, City of El Paso, El Paso County, Texas, said tract also being a part of Ruhlen Court, a 25 foot wide right-of-way according to Globe Addition (formerly Lot 19 Old Fort Bliss) an addition to the City of El Paso, El Paso County, Texas, and a 0.2217 acre parcel of land situated in the Simeon Hart Survey, Abstract number 43, City of El Paso, El Paso County, Texas, said parcel being part of that unnamed area shown as public road 25 foot wide according to Old Fort Bliss plat, City of El Paso, El Paso County, Texas. SURW15-00004 Subject Property: North of Yandell and East of Paisano. Property Owner: City of El Paso		Omitted
18774	4-17-2018	An Ordinance to amend Title 12 (Vehicles & Traffic) Chapter 12.54 (Towing Regulations and Fees), Section 12.54.020, to amend the maximum fees that may be charged within the City for non-consent vehicle tows; and to amend Section 12.54.050 to limit requests for towing fee studies to once every three years, unless the towing fee company assumes the costs associated with the study	2	12.54.020 A.1
				12.54.050 E.
18775	4-17-2018	An Ordinance changing the zoning of the following properties which are within The El Paso Community College Rio Grande Campus Subdivision, City Of El Paso, El Paso County, Texas: from A-3/H (Apartment/Historic) to S-D/H (Special Development/Historic): Lot 1, Block 5, 113 W. Rio Grande Ave., Lot 4, Block 2, 100 W. Rio Grande Ave., And Lot 2, Block 2, 906 N. El Paso St.; from A-3 (Apartment) to S-D (Special Development): Lot 3, Block 2, 916 N. El Paso St., Lot 1, Block 2, 820 N. El Paso St., and Lot 1, Block 4, 103 E. Rio Grande Ave.; from C-4 (Commercial) to S-D (Special Development): Lot 7, Block 2, 819 N. Oregon St., Lot 2, Block 3, 918 N. Oregon St., and Lot 1, Block 3, 103 Montana Ave.; from C-4/H (Commercial/Historic) to S-D/H (Special Development/Historic): Lot 6, Block 2, 903 N. Oregon St.; from A-3 (Apartment) & C-2 (Commercial) To S-D (Special Development): Lot 2, Block 5, 1111 N. Oregon St.; and approving a detailed site development plan to allow for front, rear, side, and side street yard setback reductions to 0 feet as permitted in the S-D (Special Development) zone district and imposing a condition, pursuant to Sections 20.04.360, 20.04.150, and 20.10.360 of The El Paso City Code. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. PZRZ17-00022		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18776	4-17-2018	An Ordinance changing the zoning of Lot 5, Block 2, El Paso Community College Rio Grande Campus Subdivision, City Of El Paso, El Paso County, Texas, 919 N. Oregon St., from C-4 (Commercial) and C-4/H (Commercial/ Historic) to S-D (Special Development); approving a detailed site development plan to allow for front, rear, side, and side street yard setback reductions to 0 feet; approving an exception to the height regulations to allow an increase to 105 feet as permitted in the S-D (Special Development) Zone District; and removing the Historic Designation pursuant to Sections 20.04.360, 20.04.150, 20.10.360, 20.20.040, and 20.20.050 of the El Paso City Code. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. PZRZ17-00022		Omitted
18777	4-17-2018	An Ordinance changing the zoning of Lot 1, Block 166, Tierra Del Este Unit 48, 12798 Edgemere Boulevard, City of El Paso, El Paso County, Texas from C-1 (Commercial) to C-2 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 12978 Edgemere Boulevard. Property Owner: Dual Enterprises, LLC. PZRZ17-00031 THIS IS AN APPEAL AND A 211 CASE		Omitted
18778	4-17-2018	An Ordinance granting Special Permit No. PZST17-00037, to allow for a ballroom on the property described as Lot 1, Block 166, Tierra Del Este Unit 48, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.260 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 12798 Edgemere Boulevard. Property Owner: Dual Enterprises, LLC. PZST17-00037 THIS IS AN APPEAL AND A 211 CASE		Omitted
18779	4-17-2018	An Ordinance granting Special Permit No. PZST17-00022, to allow for an off-street surface parking lot serving another property on the property described as Lot 8 and a portion of Lot 7, Block 17, Del Norte Acres, 8829 Kenneth Street, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 of the El Paso City Code, the penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 8829 Kenneth Street. Property Owner: MJ Real Property, Inc. PZST17-00022		Omitted
18780	4-17-2018	An Ordinance changing the zoning of the property described as Lots 32, 33, and the West one-half of Lot 34, Block 67, Second Supplemental Map of Franklin Heights Addition, 1115 Montana Ave., City of El Paso, El Paso County, Texas from A-2 (Apartment) to S-D (Special Development), pursuant to Section 20.04.360, approving a Detailed Site Development Plan pursuant to Section 20.04.150 and 20.10.360 of the El Paso City Code to allow for Office, professional as permitted in the S-D (Special Development) zone district. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. 1115 Montana Ave. Owner: Miguel & Julio Villanueva; PZRZ17-00020 (related to Case # PZST17-00027) THIS IS AN APPEAL		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18781	4-17-2018	An Ordinance granting a Special Permit PZST17-00027, to allow for A 91% Parking Reduction on the property described as Lots 32, 33, and the West one-half of Lot 34, Block 67, Second Supplemental Map of Franklin Heights Addition, 1115 Montana Ave., City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.280 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 1115 Montana Ave. Owner: Miguel & Julio Villanueva; PZST17-00027 (related to Case # PZRZ17-00020) THIS IS AN APPEAL		Omitted
18782	4-17-2018	An Ordinance amending Chapter 2.64 (City of El Paso Employees Retirement Trust) concerning the appointment of Trustees, changing the terms of office for certain Trustees, changing the fund name, defines termination date, changing the time to apply for a disability retirement, prescribing procedures for filling vacancies on the board, imposing educational requirements on Trustees, providing for the automatic removal of Trustees and clarifying the method for buying back service credit for members who are re-employed	a	2.64.010
			b	2.64.020
			c—f	2.64.030
			g	2.64.040
			h	2.64.070
			i, j	2.64.120 H.3, 5
			k Added	2.64.200 A.3
			l—n	2.64.210
			o	2.64.240 A
			p, q	2.64.260 C.1, 2
18783	4-17-2018	An Ordinance authorizing the City Manager to sign a deed and any other documents necessary to convey to the State Of Texas, acting by and through the Texas Transportation Commission, a 1.315 acre parcel of land situated in the J. Barker Survey, Number 9, Abstract Number 8, El Paso County, Texas and being all of Lots 3 Through 28 and part of Lots 29 Through 32, Block 24 of the second revised map of Mundy Heights Addition to the City Of El Paso, El Paso County, Texas, said parcel to be included in the Loop 375 Border West Highway Project		Omitted
18784	5-15-2018	An Ordinance authorizing the City Manager to sign a Contract of Sale, a Special Warranty Deed, and any other documents necessary to convey to the City of Socorro, Texas, a 10.327 acre parcel of land being all of Tracts 1B and 13, Block 23, and all of Tracts 4A-1, 4B and 7, Block 24, Socorro Grant, El Paso County, Texas, located at 10664 Socorro Road in El Paso County, Texas		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18785	5- 1-2018	An Ordinance amending Title 15 (Public Services) to amend Chapter 15.08 (Street Rentals) to add a definition for the Cincinnati Commercial District in Section 15.08.011 (Definitions); to add regulations for the use of Outdoor Patio Cafes throughout the City; and to add regulations for the use of Outdoor Patio Cafes in the Cincinnati Commercial District in Section 15.08.120 (Special Privilege Licenses and Permits); the penalty being as provided for in Section 15.08.070 and 15.08.125 of the El Paso City Code	1	15.08.011 D.
			2	15.08120 N.1
			Added	15.08.120 N.8
18786	5-15-2018	An Ordinance vacating a portion of city right-of-way over a portion of the 20 foot wide alley North of Block 4, a portion of the 50 foot wide right-of-way of El Paso Street between Block 3 and Block 4, and a portion of the 20 foot wide alley South of Block 3, Harris Tract, City of El Paso, El Paso County, Texas. SURW17-00009 Subject Property: North of Alameda and West of Zaragoza Applicant: Ysleta Independent School District		Omitted
18787	5- 1-2018	An Ordinance amending Ordinance No. 013629 which created the Fair Housing Task Force to extend the membership terms to three years; to allow for the appointment of alternate members, and to eliminate the appointment of ex-officio members		Omitted
18788	5-15-2018	An Ordinance establishing a municipal drainage utility system revolving note program and authorizing the issuance of program obligations in an aggregate principal amount not to exceed $25,000,000 outstanding at any one time, prescribing the terms, features and characteristics of such obligations; approving and authorizing certain authorized officers and employees of the City to act on behalf of the City in the sale and delivery of such obligations, within the limitations specified herein; making certain covenants and agreements in connection therewith; providing for the payment of the obligations; resolving other matters related thereto, including approval of a Note Purchase Agreement and a paying agent/registrar agreement; and providing an effective date		Omitted
18789	5-15-2018	An Ordinance amending City Code Title 2 (Administration and Personnel), Chapter 2.72 (Border Relations) and Ordinance No. 17208 in its entirety, establishing the standing Committee on Border Relations; to update the Membership Section 2.72.010 (Established - Membership) and the terms in Section 2.72.020 (Terms); to reference The Binational Task Force in Section 2.72.040 (Duties); and to delete Section 2.72.050 (International Bridge Safety)	1 Rpld	Ch. 2.72, 2.72.010—2.72.050
			Added	Ch. 2.72, 2.72.010—2.72.040

Ordinance Number	Approval Date	Description	Section	Section this Code
18790	5-29-2018	An Ordinance of the City Council of the City of El Paso, Texas, designating a noncontiguous geographic area within the City as a reinvestment zone pursuant to Chapter 311 of the Texas Tax Code, to be known as Reinvestment Zone Number Twelve, City of El Paso; describing the boundaries of the Zone; creating a board of directors for the Zone, establishing a tax increment fund for the zone; containing findings related to the creation of the Zone; providing a date for the termination of the Zone; providing that the Zone take effect immediately upon passage of the ordinance; providing a severability clause; and providing an effective date		Omitted
18791	5-29-2018	An Ordinance of the City Council of the City of El Paso, Texas, amending Ordinance No. 018749, concerning Tax Increment Reinvestment Zone Number Ten, City of El Paso, Texas, established pursuant to Chapter 311 of the Texas Tax Code, by expanding the boundaries of Tax Increment Reinvestment Zone Number Ten, City of El Paso, Texas		Omitted
18792	5-29-2018	An Ordinance of the City Council of the City of El Paso, Texas, designating a contiguous geographic area within the city as a reinvestment zone pursuant to Chapter 311 of the Texas Tax code, to be known as reinvestment zone number eleven, City of El Paso; Describing the boundaries of the zone; creating board of directors for the zone; establishing a tax increment fund for the zone; containing findings related to the creation of the zone; providing a date for the termination of the zone; providing that the zone take effect immediately upon passage of the ordinance; providing a severability clause; and providing an effective date		Omitted
18793	5-29-2018	An Ordinance changing the zoning of the property of the following Parcels: Parcel 1: A portion of Lot 1, Wells Park Addition First Replat; and a portion of Tracts 20-A, Section 32, Block 79, Township 2, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas, from C-1 (Commercial) to C-3/c (Commercial/condition); and, Parcel 2: all of Lots 2 thru 7, 59 thru 61, 108 thru 119, a 20 feet alley, portions of Sharon Drive & Michael Drive, Wells Park Addition first Replat; and a portion of Tracts 20-H, 20-J, & 20-T, Section 32, Block 79, Township 2, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas, from R-3 (Residential) to C-3/c (Commercial/condition). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: South of Montana Avenue and West of Joe Battle Boulevard. Property Owners: Linda Mohr & Robert Melton, John G. Switzer, John & Cathy B. Warner, Floyd N. Bartlett, BM Tierra L.P., Jose L. & Elvira Etchart, William A Loewenstein, Allan Mills, Lois G. Fox, Lorenzo T. & Tomas W. Arenas, John H. Trien, Amador Valdez, TCA Investments Corporation, Omar D. Alvarez, Mary W. Sachs, The Brothers Four Investments, LLC, Paul Janis L. Robertson, and Richard & Lobelia G. Yetter. PZRZ17-00019		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18794	5-29-2018	An Ordinance changing the zoning of a portion of Lot 1, Block 1, Cielo Vista Replat A, City of El Paso, El Paso County, Texas from C-3/c (Commercial/condition) District to S-D/c (Special-Development/condition) District. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: North of Edgemere and East of Airway. Property Owner: Landstar Hotels I, LLC. PZRZ18-00001		Omitted
18795	5-29-2018	An Ordinance granting Special Permit No. PZST18-00001, to allow for a hotel on the property described as a portion of Lot 1, Block 1, Cielo Vista Replat A, City of El Paso, El Paso County, pursuant to 20.04.320 of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: North of Edgemere and East of Airway. Property Owner: Landstar Hotels I, LLC. PZST18-00001		Omitted
18796	5-29-2018	An Ordinance changing the zoning of Lot 2, Arroyo Seco, City of El Paso, El Paso County, Texas - 1035 Vinton Avenue, City of El Paso, El Paso County, Texas from R-3 (Residential) District to C-3 (Commercial) District and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 1035 Vinton Avenue. Property Owner: Robert H. and Nancy E Brown PZRZ18-00002		Omitted
18797	7-10-2018	An Ordinance amending Title 21 (SmartCode), Chapter 21.80 (Tables), Section 21.80.150 (Table 12: Specific Function and Use), and Section 21.80.230 (Table 16: Special District Standards) of the El Paso City Code, to clarify the SmartCode provisions and to calibrate the SmartCode to the local character of the place and local conditions; the penalty is as provided for in Chapter 21.60 of the El Paso City Code. The amendment will adjust the uses allowed in certain transect zones, reconcile terminology with the use definitions established in Title 20 (Zoning), and clarify the function, purpose, and applicability of SmartCode Special Districts	1(Exh. A)	21.80.150
			2(Exh. A)	21.80.230
18798	6-26-2018	An Ordinance authorizing the City Manager to sign a deed and any other documents necessary to convey to the State of Texas, acting by and through the Texas Transportation Commission, a 3.363 acre parcel of land situated in the John Barker Survey, Number 10, Abstract Number 7, and the I.F. Harrison Survey, Number 54, Abstract Number 2804, City of El Paso, El Paso County, Texas and a 0.0205 acres parcel of land situated in the John Barker Survey, Number 10, Abstract number 7, City of El Paso, El Paso County, Texas, said parcels to be included in the Loop 375 Border West Expressway Project		Omitted
18799	6-12-2018	An Ordinance changing the zoning of a Portion of Tract 2B3, Block 18, Ysleta Grant, 750 N. Carolina Dr., City of El Paso, El Paso County, Texas from C-1 (Commercial) to C-2 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 750 N. Carolina Dr. Property Owner: Ramos & Robles, Inc. PZRZ15-00034 (related to case PZST17-00038)		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18800	6-12-2018	An Ordinance granting Special Permit No. PZST17-00038, to allow for a funeral home & crematorium on the property described as Lot 1, Carolina Estates, and a Portion of Tract 2B3A, Block 18, Ysleta Grant, 750 N. Carolina Dr., City of El Paso, El Paso County, Texas, pursuant to Section 20.10.240 of the El Paso City Code. The penalty being as provided in chapter 20.24 of the El Paso City Code. Subject Property: 750 N. Carolina Dr. Property Owner: Ramos & Robles, Inc. PZST17-00038 (related to PZRZ15-00034)		Omitted
18801	6-12-2018	An Ordinance for the Second Amendment to a Lease Agreement with El Paso Independent School District for use of MacArthur Park located at 738 Gerald Drive, and allowing for certain improvements that benefit the school public use		Omitted
18802	6-26-2018	An Ordinance granting a special privilege license to Sprint Communications Company L.P. for the construction, installation, maintenance, use, and repair of 20,970 linear feet of all necessary, desirable, and existing subsurface wires, cables, underground, conduits, manholes, or other structures and appurtenances in connection with long distance telecommunications systems and fiber optic conduit and cables within portions of city right-of-way along Mesa Hills Drive, North Boone Street, South Santa Fe Street, North Copia Street, Montana Avenue and Doniphan park drive for a term of five years with two renewable five year terms		Omitted
18803	6-26-2018	An Ordinance approving a Project and Financing Plan for Tax Increment Reinvestment Zone Number Ten, City of El Paso, Texas; making various findings related to such plan; identifying the tax increment to be contributed to the Zone's Tax Increment Financing Fund; providing for severability, and providing an effective date		Omitted
18804	6-26-2018	An Ordinance approving a Project and Financing Plan for Tax Increment Reinvestment Zone Number Twelve, City of El Paso, Texas; making various findings related to such plan; identifying the tax increment to be contributed to the Zone's Tax Increment Financing Fund; providing for severability, and providing an effective date		Omitted
18805	6-26-2018	An Ordinance approving a Project and Financing Plan for Tax Increment Reinvestment Zone Number Eleven, City of El Paso, Texas; making various findings related to such plan; identifying the tax increment to be contributed to the Zone's Tax Increment Financing Fund; providing for severability; and providing an effective date		Omitted
18806	6-26-2018	An Ordinance amending Title 19 (Subdivision and Development Plats), Article 2, (Subdivision Standards), Chapter 19.20 (Parks and Open Spaces), Section 19.20.050 (Standards for Deeded Parkland) of the El Paso City Code, to include metal shade canopies over playground structures as a minimum improvement to Parkland Deeded to the City of El Paso. The penalty is as provided for in Chapter 19.42 of the El Paso City Code	1	19.20050 B.3

Ordinance Number	Approval Date	Description	Section	Section this Code
18807	7-10-2018	An Ordinance changing the zoning of a portion of Tract 18, El Canutillo Acreage Lots Addition, 6606 Doniphan Drive, City of El Paso, El Paso County, Texas from R-4 (Residential) and M-2 (Heavy Manufacturing) to C-2 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 6606 Doniphan Drive. Property Owner: MBM Del Paso LLC. PZRZ17-00015		Omitted
18808	7-10-2018	An Ordinance changing the zoning of a portion of Tract 7, Block 15, Ysleta Grant, 661 Lomaland Drive, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) to A-1 (Apartment). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 661 Lomaland Drive. Property Owner: Faith Presbyterian Church. PZRZ18-00004		Omitted
18809	7-10-2018	An Ordinance granting Special Permit No. PZST16-00037, to allow for a 62 ft. Ground-mounted Personal Wireless Service Facility on the property described as a portion of Lot 2, Block 1, Sandstone Ranch Estates Unit Two, 5200 Marcus Uribe Drive, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.455 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 5200 Marcus Uribe Drive. Property Owner: Climate Self-Storage, Marcus Uribe Storage, L.P. PZST16-00037		Omitted
18810	7-10-2018	An Ordinance amending the Future Land Use Map contained in "Plan El Paso" for the property legally described as Tracts 10A, 10D, 11B, 12A, and 12B, Block 2, Ysleta Grant, 538 Ivey, City of El Paso, El Paso County, Texas, from O-3, Agriculture, to G-3, Post-War. Subject Property: 538 Ivey (PLCP17-00001)		Omitted
18811	7-10-2018	An Ordinance changing the zoning of the following real property known as: PARCEL 1: Tract 11B (2.389 AC), Block 2, Ysleta Grant (538 Ivey), City of El Paso, El Paso County, Texas, from R-F (Ranch and Farm) to C-3 (Commercial); and, PARCEL 2: Tract 10D (2.0785 AC) and Tract 12B (3.935 AC) (6.0315 AC), Block 2, Ysleta Grant, 538 Ivey, City of El Paso, El Paso County, Texas, from R-F (Ranch and Farm) to C-3 (Commercial); and, PARCEL 3: Tract 10A (0.3981 AC), Block 2, Ysleta Grant, 538 Ivey, City of El Paso, El Paso County, Texas, from R-F (Ranch and Farm) to C-3 (Commercial); and, PARCEL 4: Tract 12A (3.292 AC), Block 2, YSLETA GRANT, 538 Ivey, City of El Paso, El Paso County, Texas, from R-F (Ranch and Farm) to C-3 (COMMERCIAL), and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code		Omitted
18813	7-24-2018	An Ordinance changing the zoning of a Portion of Tract 4, Section 35, Block 79, TSP2, TPR&R Company Surveys, City of El Paso, El Paso County, Texas from C-4 (Commercial) to PR-I (Planned Residential -I). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. East of Rich Beam Blvd. & North Montana Ave. Owner: JNC Development Inc. PZRZ18-00003		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18814	7-24-2018	An Ordinance changing the zoning of a Portion of Lot A, Block 1, Scotsdale Addition, 9426 Montana Avenue, City of El Paso, El Paso County, Texas from C-1 (Commercial) to C-3 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. 9426 Montana Avenue. Owner: Albert Nabhan. PZRZ17-00013		Omitted
18815	7-24-2018	An Ordinance approving Detailed Site Development Plan for A Portion of Section 27, Block 79, Township 2, Texas and Pacific Railroad Company Surveys, City of El Paso, El Paso County, Texas, Pursuant to Section 20.04.150. The Penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: East of Rich Beam Blvd. & North Montana Ave. Owner: G Bowling Enterprises LLC. PZDS18-00001		Omitted
18816	7-24-2018	An Ordinance granting Special Permit No. PZST17-00016, to allow for infill development with reduction in front, rear, cumulative, and side yard setback on the property described as Lot 15, Block 25, Map of Indian Ridge Subdivision Unit 2, 11260 Thundercloud Dr., an addition to the City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. 11260 Thundercloud Dr. Owner: Luis Pizaña & Loreina Pizana PZST17-00016		Omitted
18817	7-24-2018	An Ordinance amending Title 20 (Zoning), Chapter 20.04 (Administrative Provision), Article III (Detailed Site Development Plan Approval Process) Section 20.04.160 (Content of Application) and Article VI (Changes and Amendments) Section 20.04.380 (Application Requirements) and 20.04.430 (Recommendation by Commission) of the El Paso City Code to remove requirements for generalized site plan, add a requirement for digital application submittal and add an expiration date for applications after action by City Plan Commission. The penalty is as provided for in Chapter 20.24 of the El Paso City Code	1	20.04.160
			2	20.04.380
			3	20.04.430
18818	7-24-2018	An Ordinance granting Special Permit No. PZST17-00028, to allow for a Planned Residential Development Overlay for the property described as All of Blocks 496, 497, 498, 499, 500, and 507, Tierra del Este Unit 78, City of El Paso, El Paso County, Texas (Parcel 1) and a portion of Section 48, Block 79, Township 2, Texas and Pacific Railway Co. Surveys, City of El Paso, El Paso County, Texas (Parcel 2) the penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: Generally South of Montwood, East and West of Tim Foster (Parcel 1) and generally Southeast of John Hayes and Pebble Hills, North of Montwood (Parcel 2). Owners: Lalolands, Inc.; Zia Homes, Inc.; Direct Home Sales, Inc.; Cuartes Investments, LLC; Pacifica Homes, Inc.; Montiel Brothers, Inc. DBA Palo Verde Homes.; Tri-State Ventures, LLC DBA Carefree Homes, Ranchos Real Xv, LLC. PZST17-00028		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18819	7-24-2018	An Ordinance amending Title 15 (Public Service) to amend Chapter 15.08 (Street Rentals) to clarify the hours of use of Outdoor Patio Cafes in the Cincinnati Commercial District in Section 15.08.120 (Special Privilege Licenses and Permits). No use of the Outdoor Patio Cafes will be permitted between the hours of 1 a.m. to 7 a.m.; the penalty being as provided for in Section 15.08.070 and 15.08.125 of the El Paso City Code	1	15.08.120 N.8
18820	7-24-2018	An Ordinance authorizing the City Manager to execute a Quitclaim (Tax Resale) Deed conveying to El Paso Electric Company, all of the right, title, and interest of the City of El Paso, and all other taxing units interested in the tax foreclosure judgment in the following described real property: Lot Thirty-Four (34) in Block Four (4), of the Westlyn Heights Addition to the City of El Paso, El Paso County, Texas		Omitted
18821	7-24-2018	An Ordinance to amend Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.200 - Schedule XVII - Restrictions on parking in residential districts, Subsection Zone K: No parking 7:00 a.m. to 4:00 p.m., school days only, to add Lone Point Court; Navajo Point Drive; Apache Point Drive; Hawk Point Place; Fury Point Place. The penalty being as provided in Section 12.84.010(A) and 12.84.010(B) of the El Paso City Code	1	12.88.200 K
18822	7-24-2018	An Ordinance to amend Title 12, Chapter 12.88 (Schedules), Section 12.88.180 (No stopping or standing-Tow-away zone) of the El Paso City Code to add Coloma Circle, from Liberty Street to a point 360' east thereof, north side only, the penalty being as provided in Section 12.84.010 of the El Paso City Code	1 Added	12.88.180 A.115
18823	7-24-2018	An Ordinance to amend Title 12 (Vehicles and Traffic), Chapter 12.20 (Traffic Control Devices) Section 12.88.010 (Schedule I - One-way Streets), Subsection 20 (Yandell Drive), to amend to read, Westbound from Birch Street to Santa Fe Street. The penalty being as provided in Section 12.84.010(B) of the El Paso City Code	1	12.88.010 20.
18824	7-24-2018	An Ordinance amending Title 13 (Streets, Sidewalks and Public Places) of the El Paso City Code to add a new Chapter 13.42 (Streetcar Track Access Program Procedure) to establish permitting procedures for any activity occurring within the vicinity of the El Paso Streetcar Infrastructure. The penalty is as provided in Chapter 13.42 of the El Paso City Code	1 Added	Ch. 13.42, 13.42.010—13.42.030
18825	8- 7-2018	An Ordinance approving a Project and Financing Plan for Tax Increment Reinvestment Zone Number Seven, as a 30.802-acre site, encompassing the former Northgate Mall located in Northeast El Paso at the eastern intersection of Dyer Street and Diana Drive in the City of El Paso, Texas; making various findings related to such a plan; identifying the tax increment to be contributed to the Zone's Tax Increment Financing Fund; providing for severability; and providing an effective date		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18826	8- 7-2018	An Ordinance changing the zoning of Lot 3, Block 1, Montana and Lorne Commercial District, 10130 Montana Avenue, City of El Paso, El Paso County, Texas from C-1/sc (Commercial/special contract) to C-3/sc/c (Commercial/special contract/conditions), and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 10130 Montana Avenue. Property Owner: Montana and Lorne Joint Venture. PZRZ18-00009		Omitted
18827	8- 7-2018	An Ordinance vacating a portion of City right-of-way known as the alley between Raynolds St. and Concepcion St., Block 2, Val Verde Addition, City of El Paso, El Paso County, Texas. Subject Property: North of Alameda and East of Raynolds; Applicant: Texas Tech University Health Sciences Center of El Paso SURW17-00002		Omitted
18828	8- 7-2018	An Ordinance amending Title 13 (Streets, Sidewalks, and Public Places), Chapter 13.25 (El Paso Zoo), Section 13.25.010 (El Paso Zoo fee authorization) of the El Paso City Code to update the fees authorized to be charged by the City through the El Paso Zoo, which will be set by the City's Budget Resolution or other duly authorized resolution	1—3	13.25.010 A, C, D
			4, 5 Added	13.25.010 F, G
18829	8-14-2018	An Ordinance amending Title 9 (Health and Safety), Chapter 9.04 (Solid Waste Management), Section 9.04.530 (Fees General), by amending Subsection 9.04.530E, to allow for a Franchise Fee for wear and tear on the City's rights-of-way due to use of the City's sanitation vehicles collecting, transporting and disposing municipal solid waste from residential property; the penalty being as provided in Section 9.04.630 of the El Paso City Code	1 Added	9.04.053 E
18830	8-21-2018	An Ordinance authorizing the issuance of "City of El Paso, Texas, Airport Revenue Bonds, Series 2018, (El Paso International Airport)" in an amount not to exceed $48,000,000 for airport improvements and resolving matters which are necessary to effect such issuance, including the delegation of authority within certain specified parameters. Such bonds to be payable only from revenues of the airport		Omitted
18831	8-21-2018	An Ordinance changing the zoning of Tracts 22A, 22C, and 23B, George L. Wilson Survey No. 91, 119 Atlantic Rd. & 4038 Doniphan Dr. City of EL Paso, El Paso County, Texas from R-4 (Residential) to C-1/c (Condition),and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. 119 Atlantic Rd. & 4038 Doniphan Dr. Owner: Herrera Investment Properties, LLC & Iris Sandoval. PZRZ18-00011		Omitted
18832	8-21-2018	An Ordinance changing the zoning of Lots 10 to 13, Block P-2, Garden Subdivision to East El Paso addition, also known as 2915 & 2923 Central Avenue, City of El Paso, El Paso County, Texas from A-3 (Apartment) to C-1 (Commercial), and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 2915 & 2923 Central Avenue. Property Owner: Jose and Martha E. Contreras PZRZ18-00020		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18833	8-21-2018	An Ordinance releasing certain conditions placed on property by Ordinance No. 8559 which changed the zoning of apportion of Tract 12A, A. F. Miller Survey 210 and a portion of Tract 14A, J. M. Jett Survey 155, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 201 E. Sunset Property Owner: Westside Community Church PZCR18-00002		Omitted
18834	8-21-2018	An Ordinance amending the Future Land Use Map contained in "Plan El Paso" for the property legally described as Lot 4, Block 6, Northgate Subdivision, City of El Paso, El Paso County, Texas, from O-1, Preserve, to G-2, Traditional Neighborhood. PLCP18-00001		Omitted
18835	8-21-2018	An Ordinance changing the zoning of a portion of Lot 1A and all of Lot 7, Block 6, Northgate Replat 'C' and all of Lot 4, Block 6, Northgate Subdivision, City of El Paso, El Paso County, Texas from C-3 (Commercial) and R-4 (Residential) to SCZ (SmartCode Zone), the penalty is as provided for in Chapter 21.60 of the El Paso City Code. PZRZ18-00025		Omitted
18836	8-21-2018	An Ordinance levying FY2019 taxes		Omitted
18837	9- 4-2018	An Ordinance changing the zoning of a Portion of Tract 5C6, Block 2, Ascarate Grant, 6369 Montana Ave., City of El Paso, El Paso County, Texas from A-1 (Apartment) to C-4 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. 6369 Montana Avenue. Owner: Raymond Loustaunau. PZRZ18-00013		Omitted
18838	9- 4-2018	An Ordinance granting Special Permit No. PZST18-00006, to allow for infill development with rear and side yard setback reductions and a 100% parking reduction on the property described as Lot 13, and the West of 15 feet of Lot 14, Block 23, Franklin Heights Addition, 1228 Wyoming Avenue, City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 1228 Wyoming Avenue. Property Owner: Samajeda Properties, LLC. PZST18-00006		Omitted
18839	9- 4-2018	An Ordinance changing the zoning of Tract 2-V-2, Block 30, Ysleta Grant, 200 Nogal Place, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) to R-4 (Residential). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 200 Nogal Place. Property Owner: Juan L. Salinas & Laura M. Rosencrans. PZRZ18-00026		Omitted
18840	9- 4-2018	An Ordinance changing the zoning of Tract 4A, Section 36, Block 80, Township 2, Texas and Pacific Railway Company Surveys, 11090 Montana Ave., City of El Paso, El Paso County, Texas from C-3 (Commercial) to C-4 (Commercial) and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 11090 Montana Ave. Owner: Efrain Sanchez Gonzalez. PZRZ18-00019		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18841	9- 4-2018	An Ordinance amending the Southern Industrial Park Master Plan, a study area plan incorporated within "Plan El Paso," to modify the boundaries of the Master Plan area to remove all airport properties east of Sikorsky Street from the master Plan area. PLCP18-00003		Omitted
18842	9- 4-2018	An Ordinance amending Chapter 15 (Water Conservation) of the El Paso Municipal Code. In particular, Chapter and Section 15.13.020 - Mandatory compliance - Lawn and landscape watering. This section is amended to address changes necessary to allow for a Water Conservation Plan	1	15.13.020
18843	9-18-2018	An Ordinance authorizing the City Manager to sign a License Agreement between the City of El Paso and Chico's Tacos, Inc., to permit a portion of the Northwest corner of Washington Park and a 367 square foot portion adjacent to the alley between Pera Street and Washington Park to be used for parking and for vehicular and pedestrian traffic		Omitted
18844	9-18-2018	An Ordinance granting a Special Privilege License to Chico's Tacos Inc., permitting the encroachment onto a portion of an alley adjacent to Block 2, Tobin's Washington Park Addition, El Paso, El Paso County, Texas, more commonly known as 4230 Alameda Avenue, to allow parking, signage, landscaping, and vehicular and pedestrian traffic		Omitted
18845	9-18-2018	An Ordinance granting a Special Permit No. PZST17-00010 to allow for Infill Development with lot width, setback, & 100% parking reduction of the property described as The South 7 feet of Lot 25, all of Lot 26 and the North 10 feet of Lot 27, Block 18, Second Revised Map of Sunset Heights, 1420 Hawthorne St., an addition to the City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The Penalty being as provided for in Chapter 20.24 of the El Paso City Code. 1420 Hawthorne St. Owner: Edward J. Daffron PZST17-00010		Omitted
18846	9-18-2018	An Ordinance changing the zoning of the property described as Lot 1 and the West 15 feet of Lot 2, Block 81, Franklin Heights, 1400 Arizona Ave., City of El Paso, El Paso County, Texas from R-5 (Residential) to S-D (Special Development), Pursuant to Section 20.04.360, and approving a Detailed Site Development Plan to Section 20.01.150 and 20.10.360 of the El Paso City Code to allow for a Triplex with a side and side street set-back reduction as permitted in the S-D (Special Development) zone district. The Penalty is as provided for in Chapter 20.24 of the El Paso City Code. 1400 Arizona Ave. Owner: Mario A. Silva PZRZ18-00008		Omitted
18847	9-18-2018	An Ordinance authorizing the City Manager to execute a Quitclaim (Tax Resale) Deed conveying to Figueroa Holdings, LLC, all of the right, title and interest of the City of El Paso, and all other taxing units interested in the tax foreclosure judgment in the following described real property: Lot 26 in Block 2, Orchard Park Addition to the City of El Paso, El Paso County, Texas		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18848	9-18-2018	An Ordinance authorizing the City Manager to execute a Quitclaim (Tax Resale) Deed conveying to Figueroa Holdings, LLC, all of the right, title and interest of the City of El Paso, and all other taxing units interested in the tax foreclosure judgment in the following described real property: Lots 29 and 30 in Block 2, Orchard Park Addition to the City of El Paso, El Paso County, Texas		Omitted
18849	10- 2-2018	An Ordinance of the City Council of the City of El Paso, Texas, designating a noncontiguous geographic area within the City as a reinvestment zone pursuant to Chapter 311 of the Texas Tax Code, to be known as Reinvestment Zone Number Thirteen, City of El Paso; describing the boundaries of the Zone; creating a board of directors for the Zone, establishing a tax increment fund for the zone; containing findings related to the creation of the Zone; providing a date for the termination of the Zone; providing that the Zone take effect immediately upon passage of the ordinance; providing a severability clause; and providing an effective date		Omitted
18850	10- 2-2018	An Ordinance changing the zoning of Tract 38, S.A & M.G. Railway Company Survey No. 267, 259 Hillview Ave, City of El Paso, El Paso County, Texas from R-4 (Residential) to A-2 (Apartment), and imposing a condition. The penalty provided for in Chapter 20.24 of the El Paso City Code. 259 Hillview Ave., Owner: Felix A. Martinez PZRZ18-00010		Omitted
18851	10- 2-2018	An Ordinance changing the zoning of Tract 4A, Section 36, Block 80, Township 2, Texas and Pacific Railway Company Surveys, 6305 Montana Ave., City of El Paso, El Paso County, Texas from A-1 (Apartment) to C-4 (Commercial). The penalty provided for in Chapter 20.24 of the El Paso City Code. 6305 Montana Ave. Owner: MLOUHI Organization LP. PZRZ18-00027		Omitted
18852	10- 2-2018	An Ordinance changing the zoning of all of Lots 16 & 17-19, Block 14, Womble Addition, 810 Pine Place, 5801 and 5825 Stephenson Avenue, City of El Paso, El Paso County, Texas from R-5 (Residential) to C-2 (Commercial), and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 810 Pine Place, 5801 & 5825 Stephenson Avenue. Property Owner: Jorge Valenzuela. PZRZ18-00028		Omitted
18853	10- 2-2018	An Ordinance changing the zoning of Lot 29, Block 7, Ventanas Unit 1, City of El Paso, El Paso County, Texas, from A-O (Apartment-Office) to G-MU (General Mixed-Use) and approving a Master Zoning Plan. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: Southeast Corner of Tierra Este and Ventana. Property Owner: Ventanas Place LP. PZRZ18-00017		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18854	10- 2-2018	An Ordinance changing the zoning of a portion of Lot 5, all of Lot 6, and a portion of Lot 7, Block 43, Harts Survey No. 9, a portion of Lot 3, and all of Lot 4, and a portion of Lot 5, Block 43, Harts Survey No. 9, and all of Lots 1 and 2, and a portion of Lot 3, Block 43, Harts Survey No. 9, 311 Montana Avenue, and a portion of Lot 17, and all of Lot 18, and all of Lots 19 and 20, Block 43, Harts Survey No. 9, 307 Stanton Street/906 Montana Avenue, City of El Paso, El Paso County, Texas from C-2/c (Commercial/condition) and C-4 (Commercial) to G-MU/c (General Mixed Use/condition), approving a Master Zoning Plan and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 311 Montana Avenue and 307 Stanton Street/906 Montana Avenue. Property Owners: Brixwood LLC, Respco LLC, and Jarrett Ouelette. PZRZ18-00024		Omitted
18855	10- 2-2018	An Ordinance releasing all conditions placed on property by special contract approved on September 22, 2015 which were imposed in the change of zoning of a portion of Lots 5 and 6 and a portion of Lots 4 and 7, Block 43, Hart's Survey No. 9, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 311 Montana Avenue. Property Owners: Brixwood LLC, Respco LLC, and Jarrett Ouelette. PZCR18-00003		Omitted
18856	10- 2-2018	An Ordinance granting a non-exclusive franchise to El Paso Bench Ads, LLC to place waste containers on sidewalks and other City property		Omitted
18857	10- 2-2018	An Ordinance vacating a 0.119 acre portion of Block 17, Hart's Survey No. 9 (sometimes referred to as Block 248, Campbell's Addition), El Paso, El Paso County, Texas. Subject Property: South of Wyoming and West of Mesa; Applicant: WestStar Tower, LLC; SURW18-00002		Omitted
18858	10- 2-2018	An Ordinance amending Ordinance 8064 (Classification and Compensation Plan) to amend Section 4.5 (Observed Holidays) to add Veteran's Day		Omitted
18859	10-16-2018	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.44 (Stopping, Standing and Parking Generally), Section 12.44.170 (Parking on City-Owned Property), of the El Paso City Code, to add a parking fee exemption for surviving spouses of disabled veterans with identified registered license plates at the El Paso International Airport; the penalty being as provided in Chapter 12.84 of the El Paso City Code	1 Added	12.44.170 F.
18860	10-16-2018	An Ordinance granting Special Permit No. PZST18-00007, to allow for Infill Development with lot area, lot depth, and cumulative front & rear yard setbacks reductions on the property described as Lot 38, Block 1, Howell, 5820 Tamburo Court, City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 5820 Tamburo Avenue. Property Owner: Casas Diamantina, LLC. PZST18-00007		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18861	10-16-2018	An Ordinance changing the zoning of Lot 1, Block 1, Castner Range Subdivision One, City of El Paso, El Paso County, Texas from R-4 (Residential) to C-2 (Commercial), and imposing condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: North of Hondo Pass Drive and East of Gateway North Boulevard. Property Owner: Chita L.P. PZRZ18-00014		Omitted
18862	10-16-2018	An Ordinance granting Special Permit No. PZST18-00013 to allow for a business office use in the A-3 (Apartment) District on the property described as Lot 10 and the north foot of Lot 9, Block 107, Campbell Addition, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.240 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 716 E. Fourth Ave. Property Owner: RC Senior Medical Plans Corporation. PZST18-00013		Omitted
18863	10-16-2018	An Ordinance changing the zoning of Lots 24 and 25, Block 115, Morningside heights Addition, 3334 Morningside Heights Addition, 3334 Lincoln Avenue, located in the City of El Paso, El Paso County, Texas, from R-4 (Residential) to A-2 (Apartment), the penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 3334 Lincoln Avenue. Property Owner: Jose Avila PZRZ18-00022		Omitted
18864	10-16-2018	An Ordinance amending Ordinance No. 017880 authorizing the City Manager to sign Second Amendment to Ballpark Lease by and between the City of El Paso as lessor and Mountain Star Sports Group, LLC - El Paso Baseball Club Series and Mountain Star Sports Group, LLC as tenant covering Lots 1 through 10 and Lots 11 through 40, and a portion of the t-alley Block B, Stevens Addition and a portion of Block 28 and 48, Mills Map Addition and a portion of Franklin Street, El Paso, El Paso County, Texas, containing 4.8274 acres of land more or less; a portion of Lots 30 through 42, Block C, Stevens Addition, El Paso, El Paso County, Texas containing 0.9521 acres of land more or less; and a portion of the Union Pacific Company right-of-way out of Blocks 28 and 48, Mills Map Addition, El Paso, El Paso County, Texas containing 0.1994 acres of land more or less ("City Hall Site")		Omitted
18865	10-30-2018	An Ordinance changing the zoning of A portion of Tracts 17B & 17C, Section 8, Block 79, Township 3 of the Texas and Pacific Railway Company Surveys, North of Vista del Sol Drive & West of Joe Battle Blvd., City of El Paso, El Paso County Texas from R-3 (Residential) to C-1 (Commercial), and imposing a condition. The Penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: North of Vista del Sol Drive & West of Joe Battle Blvd. Owner: Yolanda S. Nevarez & Hector Nevarez PZRZ18-00015		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18866	10-30-2018	An Ordinance changing the zoning of a portion of Tracts 1C and 17, Section 34, Block 79, Township 2, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas from S-D (Special Development) to R-5 (Residential). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: South of Montana Avenue and West of Rich Beem Boulevard. Property Owner: City of El Paso. PZRZ18-00038		Omitted
18867	10-30-2018	An Ordinance amending Chapter 13 (City Parks and Recreation Areas), Section 13.24 (Parks and Recreation Facility Use and Fee Authorization) of the El Paso City Code. In particular, Chapter and Section 13.24.200 - adding a new subsection F, to establish a cost recovery rate for Sports Complexes	1 Added	13.24.200 F.
18868	10-30-2018	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.200 (Schedule XVII - Restriction on parking in residential districts), Subsection Zone K (No parking 7:00 a.m. to 4:00 p.m., school days only), to add Darway Drive; Cartway Lane; and Eastridge Drive. The penalty being as provided in Section 12.84.010 and 12.44.280 (S) of the El Paso City Code	1	12.88.200 Zone K
18869	10-30-2018	An Ordinance approving a Project and Financing Plan for Tax Increment Reinvestment Zone Number Thirteen, City of El Paso, Texas; making various findings related to such plan; identifying the tax increment to be contributed to the Zone's Tax Increment Financing Fund; providing for severability; and providing an effective date		Omitted
18870	10-30-2018	An Ordinance authorizing the issuance of "City of El Paso, Texas, Water and Sewer Revenue Refunding Bonds, Series 2018," in an amount not to exceed $30,000,000 to refund certain previously issued obligations of the City and resolving matters which are necessary to effect such issuance, including a delegation of authority		Omitted
18871	11-13-2018	An Ordinance authorizing the City Manager to sign a land exchange agreement, deed and any other documents necessary to convey to FSW Investments, LP, approximately 2,313 acres situated in multiple portions of the Texas and Pacific Railroad Company Surveys in the Northeast section of the City of El Paso in exchange for land owned by FSW Investments, LP and located in the Northwest section of the City of El Paso		Omitted
18872	11-13-2018	An Ordinance amending Title 12 (Vehicles and Traffic) to create a new Chapter 12.90 (Parking Restrictions along Streetcar Route) to regulate parking along The El Paso Streetcar Route. The penalty is as provided in the new Chapter 12.90	1 Added	Ch. 12.90, 12.90.010—12.90.090
18873	11-13-2018	An Ordinance Amending Title 12 (Vehicles And Traffic), Chapter 12.88 (Schedules), Section 12.88.030 (Schedule III - Parking prohibited at all times on certain streets) to delete parking restrictions on Stanton Street between Blacker Avenue and Cliff Drive, West; Stanton Street between Nevada Avenue and Blacker Avenue, East Side and Stanton Street between Rio Grande Avenue and Arizona Avenue, West Side only. The penalty being provided in Chapter 12.84 of the El Paso City Code	1—3 Rpld	12.88.030 24, 27, 29

Ordinance Number	Approval Date	Description	Section		Section this Code
18874	11-13-2018	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.060 (Schedule VI - Parking Time Limited on certain streets), Subsection A. To remove parking restrictions on Stanton Street, both sides, from Montana Avenue to Rio Grande Avenue. The penalty being provided in Chapter 12.84 of the El Paso City Code	1	Rpld	12.88.060 A.8
18875	11-13-2018	An Ordinance amending Title 12 (Vehicles and Traffic) Chapter 12.88 (Schedules), Section 12.88.180 (No Stopping or Standing-Tow Away Zone), Subsection A. and Subsection E. to delete parking restrictions on Kansas Street between Mills Avenue and Myrtle Avenue, West Side; Oregon Street Between Yandell Drive and Wyoming Avenue, both sides; Franklin Avenue from Kansas Street to a point 160 feet west thereof, south side; Franklin Avenue between Mesa Street and Stanton Street, South Side; East Side of Kansas Street between Overland Avenue and Paisano Drive; and on Stanton Street, both sides, from Eighth Avenue to Wyoming Avenue. The penalty being Provided In Chapter 12.84 Of The El Paso City Code	1—5	Rpld	12.88.180 A.23, 35, 56, 86
18876	11-27-2018	An Ordinance amending Title 10 (Public Peace, Morals and Welfare) Chapter 10.24 (Miscellaneous Offenses), adding Part H to Section 10.24.040 of the El Paso City Code, providing offenders an option to request an exemption from the terms of this chapter on sex offenders' residency that prohibit certain sex offenders from residing within 1,000 feet of where children commonly gather		Added	10.24.040 H.
18877	11-27-2018	An Ordinance changing the zoning of Tract 42, S.A & M.G Railway Company Survey No. 267, 235 Hillview Avenue, City of El Paso, El Paso County, Texas from R-4 (Residential) to A-2 (Apartment) and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 235 Hillview Ave. Property Owner: Norma Yague PZRZ18-00023			Omitted
18878	11-27-2018	An Ordinance granting a Special Permit No. PZST18-00010, to allow for a ballroom on the property described as A portion of Lot 1, Block 1, Yarbrough Village, 550 Yarbrough Rd., an addition to the City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.240 of the El Paso City Code. The Penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject property: 550 Yarbrough Rd. Owner: River Oaks Properties LTD. PZST18-00010 (District 7) This case is related to rezoning (PZRZ18-00032) & special condition release (PZCR18-00004)			Omitted
18879	11-27-2018	An Ordinance changing the zoning of A portion of Lot 1, Block 1, Yarbrough Village, 550 Yarbrough Rd., an addition to the City of El Paso, El Paso County, Texas from C-1/sc (Commercial/special contract) to C2 (Commercial). The Penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject property: 550 Yarbrough Rd. Owner: River Oaks Properties LTD. PZRZ18-00032 (District 7) This case is related to special permit (PZST18-00010) & special condition release (PZCR18-00004)			Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18880	11-27-2018	An Ordinance releasing all conditions placed on property by Ordinance No. 7422, Dated March 2, 1982 which changed the zoning of A portion of Lot 1, Block 1, Yarbrough Village, 550 Yarbrough Rd., an addition to the City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 550 Yarbrough Rd. Owner: River Oaks Properties LTD. PZCR18-00004 (District 7) This case is related to special permit (PZST18-00010) & rezoning (PZRZ18-00032)		Omitted
18881	11-27-2018	An Ordinance changing the zoning of Tract 14, Dorbandt Subdivision, 171 Polo Inn Road, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) to R-4 (Residential). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 171 Polo Inn Road. Property Owner: Catholic Diocese of El Paso. PZRZ18-00036		Omitted
18882	11-27-2018	An Ordinance granting Special Permit No. PZST17-00036, to allow for a 50 ft. Ground-mounted Personal Wireless Service Facility on the property described as a portion of Lot 3, Block 12, East Glen, 11109 Sam Snead Drive, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.455 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 11109 Sam Snead Drive. Property Owner: Pik Y. Chiu. PZST17-00036		Omitted
18883	11-27-2018	An Ordinance vacating a portion of city right-of-way over Radford Street and Caples Circle of Block 103, Austin Terrace, Third Supplementary Map as amended of the Government Hill Addition, City of El Paso, El Paso County, Texas. Subject Property: North of Trowbridge and East of Radford; Applicant: Carolina Juarez SUET17-00002		Omitted
18884	12-11-2018	An Ordinance amending Title 18 (Building and Construction), Chapter 18.18 (Outdoor Lighting Code), Article X (Other Exemptions), Section 18.18.376 (City Owned Facilities), to revise and add exemptions related to the El Paso International Airport terminal and airfield. The penalty is as provided for in Chapter 18.18.400 of the El Paso City Code	1	18.18.376
18885	12-11-2018	An Ordinance changing the zoning of All of Tracts 14A and 14C, Block 52, Ysleta Grant, 1136 Southside Rd., City of El Paso, El Paso County, Texas from R-F (Ranch-farm) to M-1 (Light Manufacturing). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 1136 Southside Rd. Owner: Silt Real Estate Inc. PZRZ18-00031		Omitted
18886	12-11-2018	An Ordinance granting Special Permit No. PZST18-00003, to relocate a billboard on the property described as Lots 28, 29, and a portion of Lot 30, Block 121, Grandview Addition, 4104 Tompkins Avenue, City of El Paso, El Paso County, Texas, pursuant to Section 20.18.270 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 4104 Tompkins Avenue. Property Owner: Maria L. Holguin. PZST18-00003		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18887	12-18-2018	An Ordinance authorizing the City Manager to sign a First Amendment to Lease between the City of El Paso ("Lessor") and Sun City Community Development Corporation ("Lessee") for the assignment of the lease of property at 9135 Stahala Drive, El Paso, Texas ("Premises") and revising the uses permitted on the premises and to allow Lessee to grant licenses to use the premises		Omitted
18888	12-18-2018	An Ordinance amending the Future Land Use Map (FLUM) contained in "Plan El Paso" for the properties legally described as: Parcel 1: Lot 3 and the eastern 120 feet of Lot 2, Block 8, El Paso International Airport Tracts Unit 1, 7606 Boeing, and; Parcel 2: Lots 4-6, Block 8, El Paso International Airport Tracts Unit 1, 7610 Boeing, and; Parcel 3: Lots 7 and 8, Block 8, El Paso International Airport Tracts Unit 1, 7618 Boeing, and; Parcel 4: Lots 1 and 11, block 9, El Paso International Airport Tracts Unit 1, 8001 Lockheed, and; Parcel 5: Lots 2-4 and Lots 8-10, Block 9, El Paso International Airport Tracts Unit 1, 8037 Lockheed, and; Parcel 6: Lots 5 and 6 and 17 and 18, Block 9, El Paso International Airport Tracts Unit 1, 8108 Lockheed, and; Parcel 7: Lots 5 and 6, Block 7, El Paso International Airport Tracts Unit 2, 7328 Boeing, and; Parcel 8: Lot 1 and the western 34 feet of Lot 2, Block 8, El Paso International Airport Tracts Unit 2, 7600 Boeing, and; Parcel 9: Lots 7 and 12-16, Block 9, El Paso International Airport Tracts Unit 7, 8201 Lockheed, and; Parcel 10: Lots 1-3 and the westerly 86.5 feet of Lot 4, Block 10, El Paso International Airport Tracts Unit 7, 8400 Boeing, and; Parcel 11: northerly 205.5 feet of easterly 54 feet of Lot 4, Block 10, El Paso International Airport Tracts Unit 7, 8412 Boeing, and; Parcel 12: northerly 205.5 feet of Lot 5, Block 10, El Paso International Airport Tracts Unit 7, 8500 Boeing, and; Parcel 13: northerly 205.5 feet of Lot 6, Block 10, El Paso International Airport Tracts Unit 7, 8550 Boeing, and; Parcel 14: northerly 181 feet of Lot 1, Block 11, El Paso International Airport Tracts Unit 8 Replat A, 8600 Boeing, and; Parcel 15: northerly 181 feet of Lots 2-4, Block 11, El Paso International Airport Tracts Unit 8 Replat A, 8630 Boeing, and; Parcel 16: Lots 1 and 6 and the northerly 78 feet of Lot 2, and northerly 78 feet of Lot 5, Block 12, El Paso International Airport Tracts Unit 8 Replat A, 1625 Hawkins, and; Parcel 17: Lot 1, Block 14, El Paso International Airport Tracts Unit 11, 1701 Hawkins, and; Parcel 18: Lot 1, block 15, El Paso International Airport Tracts Unit 11, 8601 Stinson, and; Parcel 19: Lot 2, Block 15, El Paso International Airport Tracts Unit 11, and; Parcel 20: Lot 1, Block 16, El Paso International Airport Tracts Unit 11, 8401 Boeing, City of El Paso, El Paso County, Texas, from G3, post-war to G7, Industrial. Property Owner: City of El Paso. PLCP18-00002		Omitted
18889	12-18-2018	An Ordinance amending a Regulating Plan to modify the boundaries of the Regulating Plan to remove all airport properties East of Sikorsky Street from the Regulating Plan area. Owner: City of El Paso PLRP18-00005		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18890	12-18-2018	An Ordinance Changing the zoning of the following real property known as: Parcel 1: The western 54 feet of Lot 10 and eastern 68 feet of Lot 11, Block 8, El Paso International Airport Tracts Unit 1, 7727 Lockheed, City of El Paso, El Paso County Texas, from SCZ (Smartcode) To C-2 (Commercial) and; Parcel 2: The eastern 100 feet of Lot 10, Block 8, El Paso International Airport Tracts Unit 1, 7729 Lockheed, City of El Paso, El Paso County Texas, from SCZ (Smartcode) to C-2 (Commercial) and; Parcel 3: The north part of Lot 9, Block 8, El Paso International Airport Tracts Unit 1, 1605 Beech, City of El Paso, El Paso County Texas, from SCZ (Smartcode) To C-2 (Commercial) And; Parcel 4: The south part of Lot 9, Block 8, El Paso International Airport Tracts Unit 1, 7741 Lockheed, City of El Paso, El Paso County Texas, from SCZ (Smartcode) To C-2 (Commercial) and; Parcel 5: Lots 13 and 14 and the western 20 feet of Lot 12, Block 8, El Paso International Airport Tracts Unit 1, 7701 Lockheed, and; Parcel 6: The western 86 feet of Lot 11 and eastern 134 feet of Lot 12, Block 8, El Paso International Airport Tracts Unit 1, 7717 Lockheed, City of El Paso, El Paso County Texas, from SCZ (Smartcode) to C-2 (Commercial) and; Parcel 7: Lots 1-4 and 9-12, Block 7, El Paso International Airport Tracts Unit 2, 7201 Lockheed, City of El Paso, El Paso County Texas, from SCZ (Smartcode) to C-2 (Commercial) and; Parcel 8: Lot 7, Block 7, El Paso International Airport Tracts Unit 2, 7505 Lockheed, City of El Paso, El Paso County Texas, from SCZ (Smartcode) to C-2 (Commercial) and; Parcel 9: Lot 8, Block 7, El Paso International Airport Tracts Unit 2, 7501 Lockheed, City of El Paso, El Paso County Texas, from SCZ (Smartcode) To C-2 (Commercial) and; Parcel 10: The western 34 feet of Lot 15, Block 8, El Paso International Airport Tracts Unit 2, City of El Paso, El Paso County Texas, from SCZ (Smartcode) to C-2 (Commercial) and; Parcel 11: The eastern 120 feet of Lot 15, Block 8, El Paso International Airport Tracts Unit 2, 7619 Lockheed, City of El Paso, El Paso County Texas, from SCZ (Smartcode) to C-2 (Commercial) and; Parcel 12: Lot 16, Block 8, El Paso International Airport Tracts Unit 2, 7601 Lockheed, City of El Paso, El Paso County Texas, from SCZ (Smartcode) to C-2 (Commercial) and; Parcel 13: Portions of Lots 4, 5 and 6, Block 10, El Paso International Airport Tracts Unit 7, as filed in Book 24, Page 11 of the Plat Records of El Paso County, 8515 Lockheed, City of El Paso, El Paso County Texas, from SCZ (Smartcode) to C-2 (Commercial) and; Parcel 14: A portion of Lots 1, 2, 3 and 4 and all of Lot 5, Block 11, El Paso International Airport Tracts Unit 8 Replat A, as filed in Book 56, Page 54 of the Plat Records of El Paso County, 8601 Lockheed, City of El Paso, El Paso County Texas, from SCZ (Smartcode) to C-2 (Commercial) and; Parcel 15: All of Lots 3 and 4 and portions of Lots 2 and 5, Block 12, El Paso International Airport Tracts Unit 8 Replat A, as filed in Book 56, Page 54 of the Plat Records of El Paso County, 8701 Montana, City of El Paso, El Paso County Texas, From SCZ (Smartcode) To C-2 (Commercial) and;		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18890 (Cont'd)		Parcel 16: Lots 1-7, Block 13, El Paso International Airport Tracts Unit 8 Replat A, 1600 Hawkins, 1612 Hawkins, 1624 Hawkins, 1636 Hawkins, 1700 Hawkins, 1712 Hawkins, 1724 Hawkins, City of El Paso, El Paso County Texas, from SCZ (Smartcode) to C-2 (Commercial) and; Parcel 17: All of Lot 1 and a portion of Lot 2, Block 1, Hawkins Plaza, as filed in Book 18, Page 66 of the Plat Records of El Paso County, A portion of W.A. Morehouse Survey Number 12 and a portion of Section 40, Block 80, Township 2, Texas and Pacific Railway Company Surveys, 1550 Hawkins and 8836 Montana, from SCZ (Smartcode Zone) to C-2 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Owner: City of El Paso PZRZ18-00018		Omitted
18891	12-18-2018	An Ordinance changing the zoning of the following real property known as: Parcel 1: Lot 3 and the eastern 120 feet of Lot 2, Block 8, El Paso International Airport Tracts Unit 1, 7606 Boeing, City of El Paso, El Paso County Texas, from SCZ (Smartcode Zone) to M-1 (Manufacturing) and; Parcel 2: Lots 4-6, Block 8, El Paso International Airport Tracts Unit 1, 7610 Boeing, City of El Paso, El Paso County Texas, from SCZ (Smartcode Zone) to M-1 (Manufacturing) and; Parcel 3: Lots 7 and 8, Block 8, El Paso International Airport Tracts Unit 1, 7618 Boeing, City of El Paso, El Paso County Texas, from SCZ (Smartcode Zone) to M-1 (Manufacturing) and; Parcel 4: Lots 1 and 11, Block 9, El Paso International Airport Tracts Unit 1, 8001 Lockheed, City of El Paso, El Paso County Texas, from SCZ (Smartcode Zone) to M-1 (Manufacturing) and; Parcel 5: Lots 2-4 and Lots 8-10, Block 9, El Paso International Airport Tracts Unit 1, 8037 Lockheed, City of El Paso, El Paso County Texas, from SCZ (Smartcode Zone) to M-1 (Manufacturing) and; Parcel 6: Lots 5 and 6 and 17 and 18, Block 9, El Paso International Airport Tracts Unit 1, 8108 Lockheed, City of El Paso, El Paso County Texas, from SCZ (Smartcode Zone) to M-1 (Manufacturing) and; Parcel 7: Lots 5 and 6, Block 7, El Paso International Airport Tracts Unit 2, 7328 Boeing, City of El Paso, El Paso County Texas, from SCZ (Smartcode Zone) to M-1 (Manufacturing) and; Parcel 8: Lot 1 and the western 34 feet of Lot 2, Block 8, El Paso International Airport Tracts Unit 2, 7600 Boeing, City of El Paso, El Paso County Texas, from SCZ (Smartcode Zone) to M-1 (Manufacturing) and; Parcel 9: Lots 7 and 12-16, Block 9, El Paso International Airport Tracts Unit 7, 8201 Lockheed, City of El Paso, El Paso County Texas, from SCZ (Smartcode Zone) to M-1 (Manufacturing) and; Parcel 10: Lots 1, 2, and 3 and portions of Lots 4, 5, and 6, Block 10, El Paso International Airport Tracts Unit 7, as filed in Book 24, Page 11 of the Plat Records of El Paso County, 8400 Boeing, 8412 Boeing, 8500 Boeing, 8550 Boeing, City of El Paso, El Paso County Texas, from SCZ (Smartcode Zone) to M-1 (Manufacturing) and; Parcel 11: Lots 1, 2, 3, and 4, Block 11, El Paso International Airport Tracts Unit 8 Replat A, as filed in Book 56, Page 54 of the Plat Records of El Paso County, 8600 Boeing, 8630 Boeing, City of El Paso, El Paso County Texas, from SCZ (Smartcode Zone) to M-1 (Manufacturing) and;		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18891 (Cont'd)		Parcel 12: Lots 1 and 6 and the northerly 78 feet of Lot 2, and the northerly 78 feet of Lot 5, Block 12, El Paso International Airport Tracts Unit 8 Replat A, 1625 Hawkins, City of El Paso, El Paso County Texas, from SCZ (Smartcode Zone) to M-1 (Manufacturing) and; Parcel 13: Lot 1, Block 14, El Paso International Airport Tracts Unit 11, 1701 Hawkins, City of El Paso, El Paso County Texas, from SCZ (Smartcode Zone) to M-1 (Manufacturing) and; Parcel 14: Lot 1, Block 15, El Paso International Airport Tracts Unit 11, 8601 Stinson, City of El Paso, El Paso County Texas, from SCZ (Smartcode Zone) to M-1 (Manufacturing) and; Parcel 15: Lot 2, Block 15, El Paso International Airport Tracts Unit 11, 8601 Stinson City of El Paso, El Paso County Texas, from SCZ (Smartcode Zone) to M-1 (Manufacturing) and; Parcel 16: Lot 1, Block 16, El Paso International Airport Tracts Unit 11, 8401 Boeing, City of El Paso, El Paso County Texas, from SCZ (Smartcode Zone) to M-1 (Manufacturing). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Owner: City of El Paso PZRZ18-00018		Omitted
18892	1- 8-2019	An Ordinance authorizing the issuance of "City of El Paso, Texas, General Obligation Bonds, Series 2019" in one or more series; levying a continuing direct annual ad valorem tax for the payment of such Bonds; and resolving other matters which are necessary to effectuate such issuance; including the delegation of matters relating to the sale and issuance of the Bonds to an authorized City official within certain specified parameters		Omitted
18893	1- 8-2019	An Ordinance authorizing the issuance of "City of El Paso, Texas Combination Tax and Revenue Certificates of Obligation, Series 2019"; levying a continuing direct annual ad valorem tax for the payment of such certificates; and resolving other matters which are necessary to effectuate such issuance, including the delegation of matters relating to the sale and issuance of the Certificates to an authorized City official within certain specified parameters		Omitted
18894	1- 8-2019	An Ordinance amending Title 6 of the El Paso City Code (Transportation for Hire); revising Section 6.04.090 (Operating Authority Permit-Application) to add Subsection 5 (Color Scheme); revising Section 6.04.110 (Driver's Qualifications) to add Subsection B; adding Section 6.04.210 (Conduct of Drivers); adding Section 6.04.330 (Vehicle Requirements and Inspections); adding Section 6.04.340 (Vehicle Color Scheme and Distinctive Markings); revising Section 6.04.410 to add verbiage requiring by appointment only vehicle for hire services to keep logbook of their pick-ups; adding Section 6.04.420 (Vehicle Identification Requirements); correcting typographical errors throughout; the penalty being as provided in Sections 1.08.010, 1.08.020, and 1.08.030 of the El Paso City Code	1	Ch. 6.04, 6.04.010—6.04.480
				Ch. 6.36, 6.36.010—6.36.130

Ordinance Number	Approval Date	Description	Section	Section this Code
18895	1- 8-2019	An Ordinance changing the zoning of all of Lots 18, 19, and Portions of Lots 17, 21, and 22, Block 18, Third Amended Map of Highland Park Addition (1964 Murchison Street), City of El Paso, El Paso County, Texas from A-2 (Apartment) to R-MU (Residential Mixed Use), approving a Master Zoning Plan, and waiving the minimum one acre district requirement for the R-MU (Residential Mixed-Use) Zoning District. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 1964 Murchison Street. Property Owner: Snap Pads, LLC. PZRZ18-00030		Omitted
18896	1- 8-2019	An Ordinance changing the zoning of Lot 5 and the north 17 feet of Lot 4, Block 43, Alexander Addition, 1509 N. Campbell Street, City of El Paso, El Paso County, Texas, from R-5 (Residential) to A-3 (Apartment). The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 1509 N. Campbell Street. Property Owner: Jesus Navarro. PZRZ18-00033		Omitted
18897	1- 8-2019	An Ordinance granting Special Permit No. PZST18-00011, to allow for infill development with a 100% reduction in parking requirement of ten (10) stalls, reduction in required rear setback from twenty (20) feet to five (5) feet, northerly side setback from four (4) feet to one (1) foot, and southerly side setback from four (4) feet to zero (0) feet, on the property legally described as Lot 5 and the north 17 feet of Lot 4, Block 43, Alexander Addition, 1509 N. Campbell Street, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280, Infill Development, of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 1509 N. Campbell Street. Property Owner: Jesus Navarro. PZST18-00011		Omitted
18898	1- 8-2019	An Ordinance Amending Title 12 (Vehicles And Traffic) Chapter 12.04 (General Provisions And Definitions); and Title 12 (Vehicles And Traffic), Chapter 12.80 (Miscellaneous Traffic Regulations), Section 12.80.090 (Driving On Sidewalks), of the El Paso City Code to allow for the use of motor assisted scooters on sidewalks. The Penalty is as provided in Chapter 12.84 of the El Paso City Code	1 Added	12.04.125
			2	12.80.090
18899	1- 8-2019	Ordinance Amending Title 15 (Public Services), Chapter 15.08 (Street Rentals) of the El Paso City Code to create a new Section 15.08.150 (Shared Mobility Devices) to regulate Shared Mobility Devices within the public right-of-way and amending Title 15 (Public Services). The penalty is as provided in Section 15.08.150 of the El Paso City Code as amended	1 Added	15.08.150
18900	1-22-2019	An Ordinance granting Special Permit No. PZST17-00013, to allow for a helistop on the property described as Lots 1 to 15 & Closed Alley and Adjacent Street, Block 91, Alexander Addition, 1800 Oregon Street, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.240 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 1800 Oregon Street. Property Owner: HCA Health Systems of Texas, Independent Mortgage Company, and El Paso Electric Company. PZST17-00013		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18901	1-22-2019	An Ordinance Granting Special Permit No. PZST17-00013, to allow for off-street parking serving another property in accordance with Section 20.10.410 on the property described as Lots 1 to 10, Block 78, Alexander Addition, 1711 Oregon Street, City of El Paso, El Paso County, Texas; Lots 11 to 20, Block 46, Alexander Addition, 1500 Oregon Street, City of El Paso, El Paso County, Texas; Lots 9 to 12, Block 70, and Lots 9 to 12, Block 80, and the adjoining alley and a portion of vacated Los Angeles Street, Alexander Addition, SW corner of El Paso & Rim Road, City of El Paso, El Paso County, Texas; Lots 9 to 12 Block 81, Alexander Addition, SE corner of Randolph and Rim Road, City of El Paso, El Paso County, Texas, Lots 1 to 8 and a portion of the adjoining alley, Block 79, Alexander Addition, 1717 El Paso & 201 Schuster Ave., City of El Paso, El Paso County, Texas, pursuant to Section 20.10.410 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 1711 Oregon Street, 1500 Oregon Street, the SW corner of El Paso & Rim Road, the SE corner of Randolph and Rim Road, 1717 El Paso Street & 201 Schuster Ave. Property Owner: HCA Health Systems of Texas, Independent Mortgage Company, and El Paso Electric Company. PZST17-00013		Omitted
18902	1-22-2019	An Ordinance changing the zoning of the following parcels: Parcel 1: A portion of Tract 7L5, Block 30, Ysleta Grant, 101 Fresno Drive, City of El Paso, El Paso County, Texas, from R-3 (Residential) to C-1 (Commercial); and, Parcel 2: A portion of Tract 7L5, Block 30, Ysleta Grant, 101 Fresno Drive, City of El Paso, El Paso County, Texas, from R-3 (Residential) to R-5 (Residential), and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject property: 101 Fresno Drive, Property Owner: NV Global, LLC. PZRZ18-00043		Omitted
18903	2- 5-2019	An Ordinance granting Special Permit No. PZST16-00011, to allow for Infill Development with a reduction is side, front, rear, and cumulative setback on the property described as Tract 5-A-2 and a portion of Mike Lane R.O.W., JH. Johannson Survey No. 185, 216 Mike Ln., City of El Paso, El Paso County, Texas pursuant to Section 20.04.320 of the El Paso City Code. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 216 Mike Ln. Owner: Adolfo O. Gonzalez PZST16-00011		Omitted
18904	2- 5-2019	An Ordinance changing the zoning of a portion of Tract 6, Section 16, Block 79, Township 3, Texas and Pacific Railway Surveys, 1408 Joe Battle Blvd., City of El Paso, El Paso County, Texas from R-3 (Residential) to C-4 (Commercial), and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. 1408 Joe Battle Blvd. Owner: Pellicano and 375 LLC. PZRZ18-00039		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18905	2- 5-2019	An Ordinance changing the zoning of Lots 17-24 and the East ½ of Lot 25, Block 118, Supplemental Map No. 1 of East El Paso Addition, 3528 Pershing Dr., City of El Paso, El Paso County, Texas from A-2 (Apartment) to C-2 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 3528 Pershing Dr. Owner: 900 Magoffin Investment Company, LC. PZRZ18-00048		Omitted
18906	2- 5-2019	An Ordinance changing the zoning of all of Lots 1 truth 12 of Block 8, Eastwood Section 1, an Addition to the City of El Paso, El Paso County, Texas from R-3 (Residential) to C-1 (Commercial) and imposing a condition. The penalty is as provided for in Chapter 20.24 in the El Paso City Code. Subject Property: the entire block located at the southeast corner of the intersection of Bois D'Arc and Boxwood. Property Owner: El Paso Healthcare Systems, LTD., A Texas Limited Partnership PZRZ18-00040		Omitted
18907	2-26-2019	An Ordinance amending Title 5 (Business License and Permit Regulations), Chapter 5.03 (Reserved), in its entirety to include a permit requirement for non-residential property where sound amplification equipment Is used to emit sound in an outdoor area from 10:00 p.m. to midnight; the penalty as provided in 5.03.120 of the El Paso City Code	1 Added	Ch. 5.03, 5.03.010—5.03.130
18908	2-26-2019	An Ordinance amending Title 9 (Health and Safety), Chapter 9.40 (noise) to update the Ordinance and remove permit-related language throughout the Ordinance so that only nuisance language remains; by deleting permit related language from 9.40.010 (Definitions); to replace Section 9.40.020 (Decibel Measurement Criteria) with (Applicability); to replace Section 9.40.030 (Designated Noise Zones) with (Sound Level Violations); to replace Section 9.40.040 (Exterior Noise Standards) with (Vibration); to replace Section 9.40.050 (Interior Noise Standards) with (Sound Level Measurement); to replace Section 9.40.060 (Additional Noise Standards) with (Identification of Violator); to replace Section 9.40.070 (Noise Sensitive Zones) with (Penalties); to replace Section 9.40.080 (Noise Level Measurement) with (Enforcement); to delete Sections 9.40.090-9.40.140; the penalty being as provided in Section 9.40.070 of the El Paso City Code	1	9.40.010
			2 Rpld	9.40.020
			Added	9.40.020
			3 Rpld	9.40.030
			Added	9.40.030
			4 Rpld	9.40.040
			Added	9.40.040
			5 Rpld	9.40.050
			Added	9.40.050
			6 Rpld	9.40.060
			Added	9.40.060
			7 Rpld	9.40.070

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			Added	9.40.070
			8 Rpld	9.40.080
			Added	9.40.080
			9—14 Rpld	9.40.090—9.40.140
18909	2-26-2019	An Ordinance Granting Special Permit no. PZST17-00013, to allow for a parking reduction on the property described as lots 1 to 15 & closed alley and adjacent street, Block 91 Alexander Addition City of El Paso, El Paso County, Texas (1800 Oregon); Lots 1 to 20 & Closed Alley, Block 90 Alexander Addition, 1801 Oregon St., City of El Paso, El Paso County, Texas, Lots 16 to 20, Block 91, Alexander Addition, 101 Rim Road, City of El Paso, El Paso County, Texas; Lots 11 to 20, Block 77, Alexander Addition, 1700 Oregon Street, City of El Paso, El Paso County, Texas. Pursuant to section 20.14.070 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 1800 Oregon Street, 1801 Oregon Street, 101 Rim Road, 1700 Oregon Street. Property Owner: HCA Healthcare Services, Independent Mortgage Company, El Paso Electric Company. PZST17-00013		Omitted
18910	3- 5-2019	An Ordinance granting a lease to McAllen Data Center, LLC, of a single duct in a portion of the City's existing underground conduit system on Zaragoza Road between Zaragoza International Bridge and Chito Samaniego Dr. and Rojas Dr. for their internal Fiber Optic Telecommunications System utilizing the City's existing underground conduit system across, over and under portions of public right-of-way along Zaragoza Road within the City of El Paso. The following consideration is to be paid to the City: $19,019.70 (Conduit Lease Fee) and an annual fee ($25,000.00)		Omitted
18911	3- 5-2019	An Ordinance amending Ordinance No. 016528 to modify requirements for membership on the board of directors of the Tax Reinvestment Zone Number Five, City of El Paso, Texas		Omitted
18912	3- 5-2019	An Ordinance granting Special Permit No. PZST18-00016, to allow for a helistop on the property described as a portion of Lots 6, 7, and 9, Block 3, San Clemente Addition, 452 Rocky Point Drive, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.240 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 452 Rocky Point Drive. Property Owner: Perlan International, LLC. PZST18-00016		Omitted
18913	3-19-2019	An Ordinance of the City Council of the City of El Paso, Texas amending Ordinance No. 018792 concerning Tax Increment Reinvestment Zone Number Eleven, City of El Paso, Texas, by expanding the boundaries of the Zone; containing findings related to the expansion of the Zone; establishing the City's tax increment contribution in regards to the expanded area; and amending the language of the zone duration provision		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18914	3-19-2019	An Ordinance changing the zoning of Tract 14-A, Block 45, Ysleta Grant, 180 N. Zaragoza Rd., City of El Paso, El Paso County, Texas and Tracts 15-B-3 And 15-B-1-B, 193 N. Pueblo Rd., City of El Paso, El Paso County, Texas from R-4/H (Residential/Historic) to C-1/H (Commercial/Historic), and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 180 N. Zaragoza Rd. and 193 N. Old Pueblo Rd. Property Owner: Gilbert Malooly and Malooly Properties, LLC. PZRZ18-00029		Omitted
18915	3-19-2019	An Ordinance granting Special Permit No. PZST18-00017, to allow for a Community College Campus on the property described as Lot 1, Block 1, El Paso Community College Northwest Campus, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.260 of the El Paso City Code and repealing Ordinance No. 15866. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 6701 S. Desert Boulevard. Property Owner: El Paso Community College. PZST18-00017		Omitted
18916	3-19-2019	An Ordinance changing the zoning of Lot 1, Block 1, EPISD E-17, 5401 Marcus Uribe Drive, City of El Paso, El Paso County, Texas, from R-F (Ranch-Farm) to R-3A (Residential). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 5401 Marcus Uribe Drive, Property Owner: Desert View Construction, LLC. PZRZ18-00050		Omitted
18917	3-19-2019	An Ordinance to correct Ordinance 017907 vacating a portion of Main Street, City of El Paso, El Paso County, Texas. Subject Property: North of San Antonio and West of Mesa Street; Applicant: Mills Plaza Parking, L.P.		Omitted
18918	3-19-2019	An Ordinance amending Title 12, Chapter 12.88 (Schedules), Section 12.88.200 (Schedule XVIII - Restrictions on parking in residential districts), Paragraph U (No Parking 9:00 a.m. to 10:00 p.m., everyday) to add N. El Paso Street from W. Rio Grande Avenue to E. Yandell Drive, the penalty being as provided in Section 12.84.010 and 12.44.280 (S) of the El Paso City Code	1	12.88.200 Zone U
18919	3-19-2019	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.20 (Traffic Control Devices), Section 12.20.060 (Signal Legend-Go, Caution and Stop), Subsection C (Red Alone or "Stop") to prohibit right turns at the intersection of Dyer Street and Ellerthorpe Ave., Northbound and Southbound traveling on Dyer Street. The penalty being provided in Chapter 12.84 (Penalty) of the El Paso City Code	1	12.20.060 C.
18920	3-19-2019	An Ordinance authorizing the issuance of $1,415,000 of "City of El Paso, Texas, Water and Sewer Revenue Bonds, Series 2019" to the Texas Water Development Board in order to finance certain wastewater system improvements; and enacting provisions related thereto		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18921	4- 2-2019	An Ordinance authorizing the City Manager to sign a Contract of Sale, Deed and any other documents necessary to convey to Hunt Metro 31, LLC, the affordable residential housing parcel within the Northgate Transit Oriented Development Project, such property being approximately 2.4 acres situated in Lot 7, Block 6, Northgate Replat "C", El Paso, El Paso County, Texas, for the purchase price of five hundred forty-nine thousand eight hundred thirty-two and 00/100 ($549,832.00)		Omitted
18922	4- 2-2019	An Ordinance granting Special Permit No. PZST19-00004, to allow for a 50 ft. Ground-mounted Personal Wireless Service Facility on the property described as a portion of Lot 1, Block 1, Hueco Mountain Village, 11800 Montana Avenue, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.455 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 11800 Montana Avenue. Property Owner: UWAMOSA, LLC. PZST19-00004		Omitted
18923	4-30-2019	An Ordinance authorizing the City Manager to sign the First Amendment to Ordinance No. 018871, the Land Exchange Agreement between the City of El Paso and FSW Investments, LP to extend the deadline by which the parties must enter into a development agreement; amend certain definitions and the manner in which closing is to occur; and to provide for the City's cooperation in the creation of a Municipal Management District over the City-owned property located in the northeast section of the City being transferred to FSW Investments, LP		Omitted
18924	4-30-2019	An Ordinance granting a franchise for Dominion Ambulance, LLC to operate a non-emergency ambulance transfer service		Omitted
18925	4-30-2019	An Ordinance granting a franchise for Elite Medical Transport of Texas, LLC to operate a non-emergency ambulance transfer service		Omitted
18926	4-30-2019	An Ordinance granting a franchise for Life Ambulance Service, Inc. to operate a non-emergency ambulance transfer service		Omitted
18927	4-30-2019	An Ordinance amending Title 9 (Health and Safety), Chapter 9.85 (Emergency and Transfer Ambulance Services), Section 9.85.110 (Personnel, Vehicles and Equipment - Standards and Requirements; Inspection), Subsection C, to correct a reference to the type of equipment each ambulance must carry; the penalty as provided in Section 9.85.130 of the El Paso City Code	1	9.85.110 C.
18928	4-30-2019	An Ordinance vacating a 20' alley out of Block 77, Campbell Addition, City of El Paso, El Paso County, Texas. SURW18-00003 Subject Property: South of Paisano and East of Kansas, Applicant: Housing Authority of the City of El Paso		Omitted
18929	4-30-2019	An Ordinance to amend the City of El Paso Bike Plan to delete Resler Canyon Connection from the City of El Paso Bike Plan		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18930	5-14-2019	An Ordinance changing the zoning of the following real property known as: PARCEL 1: 428 James St., C Christy PT of TR 6 & 7 beg 393.7 ft. NE of SWC irreg on N 87.6 on E 462.98 on S 101.6 ft. on W, City of El Paso, El Paso County, TX; and, PARCEL 2: 432 James St., C Christy N 86.50 ft. of S 393.7 ft. of TR 6 & 7, City of El Paso, El Paso County, TX; and, PARCEL 3: 436 James St., C Christy N 86.50 ft. of S 307.20 ft. of TR 6 & 7, City of El Paso, El Paso County, TX; and, PARCEL 4: 440 James St., C Christy N 86.50 ft. of S 220.70 ft. of 6 & 7, City of El Paso, El Paso County, TX; and, PARCEL 5: 444 James St., C Christy N 86.5 ft. of S 134.2 ft. of TRS 6 & 7, City of El Paso, El Paso County, TX; and, PARCEL 6: 500 James St., C Christy S 47.70 ft. of 6 & 7 & N 38.80 ft. of 8 & 9, City of El Paso, El Paso County, TX; and, PARCEL 7: 501 James St., D Christy N 89.00 ft. of 4 & 5, City of El Paso, El Paso County, TX; and, PARCEL 8: 504 James St., C Christy Tract W 150.84 ft. of S 86.50 ft. of N 125.30 ft. of 8 & 9, City of El Paso, El Paso County, TX; and, PARCEL 9: 500 James St., C Christy Tract E 312.05 ft. of S 86.50 ft. of N 125.30 ft. of 8 & 9, City of El Paso, El Paso County, TX; and, PARCEL 10: 505 James St., D Christy S 78 ft. of N 167 ft. of 4 & 5, City of El Paso, El Paso County, TX; and, PARCEL 11: 508 James St., C Christy Tract S 86.50 ft. of N 211.80 ft. of 8 & 9, City of El Paso, El Paso County, TX; and, PARCEL 12: 509 James St., D Christy S 78 ft. of N 245 ft. of 4 & 5, City of El Paso, El Paso County, TX; and, PARCEL 13: 512 James St., C Christy Tract S 86.50 ft. on N 298.30 ft. of 8 & 9, City of El Paso, El Paso County, TX; and, PARCEL 14: 513 James St., D Christy S 78.0 ft. of N 323 ft. of 4 & 5, City of El Paso, El Paso County, TX; and, PARCEL 15: 516 James St., C Christy S 86.5 ft. of N 384.8 ft. of TRS 8 & 9, City of El Paso, El Paso County, TX; and, PARCEL 16: 517 James St., D Christy N 78' of S 95.29' of N 418.29' of 4 & 5 (78' on st - 523.18' on N -78' on W -523.62' on S), City of El Paso, El Paso County, TX; and, PARCEL 17; 520 James St., C Christy N 86.5 ft. of S 432.5 ft. of TRS 8 & 9, City of El Paso, El Paso County, TX; and, PARCEL 18: 521 James St., D Christy N 78' of S 416.3' of 4 & 5 (78' on ST -523.62' on N -78' on W - 524.06' on S), City of El Paso, El Paso County, TX; and, PARCEL 19: 524 James St., C Christy Tract N 86.5 ft. of S 346 ft. of TR 8 & 9, City of El Paso, El Paso County, TX; and, PARCEL 20: 525 James St., D Christy N 78 ft. of S 388.3 ft. of 4 & 5 Unit T, City of El Paso, El Paso County, TX; and, PARCEL 21: 528 James St., C Christy N 86.50 ft. of S 259.50 ft. of (8 & 9), City of El Paso, El Paso County, TX; and, PARCEL 22: 532 James St., C Christy N 86.5 of S 173 of TR 8 & 9, City of El Paso, El Paso County, TX; and, PARCEL 23: 533 James St., D Christy PT of 4 & 5 BEG 182.33 FT N of SEC of 4 (497.80' on S-irreg on W-524.49' on N-77.97' on ST), City of El Paso, El Paso County, TX; and, PARCEL 24: 533 James St., D Christy N 85 FT of S 182.33 ft. of 4 & 5 (497.80 ft. on N - 85 ft. on E - 443.48 ft. on S - 100.92 ft. on W), City of El Paso, El Paso County, TX;		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
		and, PARCEL 25: 536 James St., C Christy S 86.5 ft. of TRS 8 & 9, City of El Paso, El Paso County, TX; and, PARCEL 26: 537 James St., D Christy SLY 97.33 ft. of (4 & 5), City of El Paso, El Paso County, TX; from R-3 (Residential) to R-1 (Residential), the penalty is as provided for in Chapter 20.24 of the El Paso City Code. PZRZ19-00001		
18931	5-14-2019	An Ordinance granting Special Permit no. PZST19-00005, to allow for a planned residential development overlay on the property described as: PARCEL 1: 428 James St., C Christy PT of TR 6 & 7 beg 393.7 ft. NE of SWC irreg on N 87.6 on E 462.98 on S 101.6 ft. on W, City of El Paso, El Paso County, TX; and, PARCEL 2: 432 James St., C Christy N 86.50 ft. of S 393.7 ft. of TR 6 & 7, City of El Paso, El Paso County, TX; and, PARCEL 3: 436 James St., C Christy N 86.50 ft. of S 307.20 ft. of TR 6 & 7, City of El Paso, El Paso County, TX; and, PARCEL 4: 440 James St., C Christy N 86.50 ft. of S 220.70 ft. of 6 & 7, City of El Paso, El Paso County, TX; and, PARCEL 5: 444 James St., C Christy N 86.5 ft. of S 134.2 ft. of TRS 6 & 7, City of El Paso, El Paso County, TX; and, PARCEL 6: 500 James St., C Christy S 47.70 ft. of 6 & 7 & N 38.80 ft. of 8 & 9, City of El Paso, El Paso County, TX; and, PARCEL 7: 501 James St., D Christy N 89.00 ft. of 4 & 5, City of El Paso, El Paso County, TX; and, PARCEL 8: 504 James St., C Christy Tract W 150.84 ft. of S 86.50 ft. of N 125.30 ft. of 8 & 9, City of El Paso, El Paso County, TX; and, PARCEL 9: 500 James St., C Christy Tract E 312.05 ft. of S 86.50 ft. of N 125.30 ft. of 8 & 9, City of El Paso, El Paso County, TX; and, PARCEL 10: 505 James St., D Christy S 78 ft. of N 167 ft. of 4 & 5, City of El Paso, El Paso County, TX; and, PARCEL 11: 508 James St., C Christy Tract S 86.50 ft. of N 211.80 ft. of 8 & 9, City of El Paso, El Paso County, TX; and, PARCEL 12: 509 James St., D Christy S 78 ft. of N 245 ft. of 4 & 5, City of El Paso, El Paso County, TX; and, PARCEL 13: 512 James St., C Christy Tract S 86.50 ft. on N 298.30 ft. of 8 & 9, City of El Paso, El Paso County, TX; and, PARCEL 14: 513 James St., D Christy S 78.0 ft. of N 323 ft. of 4&5, City of El Paso, El Paso County, TX; and, PARCEL 15: 516 James St., C Christy S 86.5 ft. of N 384.8 ft. of TRS 8 & 9, City of El Paso, El Paso County, TX; and, PARCEL 16: 517 James St., D Christy N 78' of S 95.29' of N 418.29' of 4 & 5 (78' on st - 523.18' on N -78' on W -523.62' on S), City of El Paso, El Paso County, TX; and, PARCEL 17; 520 James St., C Christy N 86.5 ft. of S 432.5 ft. of TRS 8 & 9, City of El Paso, El Paso County, TX; and, PARCEL 18: 521 James St., D Christy N 78' of S 416.3' of 4 & 5 (78' on ST -523.62' on N -78' on W - 524.06' on S), City of El Paso, El Paso County, TX; and, PARCEL 19: 524 James St., C Christy Tract N 86.5 ft. of S 346 ft. of TR 8 & 9, City of El Paso, El Paso County, TX; and, PARCEL 20: 525 James St., D Christy N 78 ft. of S 388.3 ft. of 4 & 5 Unit T, City of El Paso, El Paso County, TX; and, PARCEL 21: 528 James St., C Christy N 86.50 ft. of S 259.50 ft. of (8 & 9), City of El Paso, El Paso County, TX; and, PARCEL 22: 532 James St., C Christy N 86.5 of S 173 of TR 8 & 9, City of El Paso, El Paso County, TX;		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
		and, PARCEL 23: 533 James St., D Christy PT of 4 & 5 BEG 182.33 FT N of SEC of 4 (497.80' on S-irreg on W-524.49' on N-77.97' on ST), City of El Paso, El Paso County, TX; and, PARCEL 24: 533 James St., D Christy N 85 FT of S 182.33 ft. of 4 & 5 (497.80 ft. on N - 85 ft. on E - 443.48 ft. on S - 100.92 ft. on W), City of El Paso, El Paso County, TX; and, PARCEL 25: 536 James St., C Christy S 86.5 ft. of TRS 8 & 9, City of El Paso, El Paso County, TX; and, PARCEL 26: 537 James St., D Christy SLY 97.33 ft. of (4 & 5), City of El Paso, El Paso County, TX;, pursuant to Section 20.10.470 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. PZST19-00005		
18932	5-14-2019	An Ordinance authorizing the City Manager to sign a contract of sale with Northtowne Village Joint Venture for the sale of 73.19 acres, more or less, being a portion of Section 31, Block 80, Township 1, Texas and Pacific Railway Surveys, El Paso County, Texas		Omitted
18933	5-14-2019	An Ordinance authorizing the City Manager to sign a contract of sale with Northtowne Village Joint Venture for the sale of 43.40 acres, more or less, being a portion of Section 31, Block 80, Township 1, Texas and Pacific Railway Surveys, El Paso County, Texas		Omitted
18934	5-14-2019	An Ordinance of the electorate of the City of El Paso adopted by operation of law pursuant to the initiative authority of Section 3.11 of the El Paso City Charter, preserving in its natural state, for all time, the approximately 1,106.93 acres owned by the City of El Paso and referred to as "Tax Increment Reinvestment Zone Number Twelve," which includes the "Lost Dog Trail," and prohibiting, for all time, any private development and any major public roadways on said acres		Omitted
18935	5-28-2019	An Ordinance vacating a portion of city right-of-way over a portion of Edson Ave. NKA Fullan Street, between Lots 1, 2 and 3, Block A, and Lots 1 and 2, Block B, and a portion of 18' alley, Block A, and a portion of 18' Alley, Block A, Hadlock Addition, City of El Paso, El Paso County, Texas. Subject Property: South of Alameda & West of Raynolds; Applicant: El Paso Independent School District; SURW18-00001		Omitted
18936	6-11-2019	An Ordinance granting Special Permit No. PZST17-00021, to allow for a Planned Residential Development Overlay on the property described as a portion of Lot 3, Block 391, Tierra Del Este Unit Sixty Nine, and a portion of Lot 4, Block 391, Tierra Del Este Unit Seventy Two and a portion of Section 37, Block 79, Township 2, Texas and Pacific Railway Company Surveys, a portion of Lot 1, Block 461, Tierra Del Este Unit Seventy Two and a portion of Lot 2, Block 461, Tierra Del Este Unit Seventy Six, and a portion of Section 37, Block 79, Township 2, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.470 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: North of Pebble Hills Boulevard and East of John Hayes Street. Property Owner: Ranchos Real XVI, LLC. PZST17-00021		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18937	6-25-2019	An Ordinance annexing the following real property described as the West ½ of the Northwest ¼ of the Northwest 1/4 of the Northwest ¼ of Block 79, Township 3, Section 3, Texas and Pacific Railway Company Surveys, El Paso County, Texas. Property Owner: Las Tierras Community Church. SUAX17-00002		Omitted
18938	6-25-2019	An Ordinance amending Title 18 (Building and Construction), Chapter 18.02 (Building and Construction Administrative Code), Section 18.02.106 (Permit Fees), Subsection 18.02.106.5 (Building Permit Valuations), Subsection 18.02.106.6 (Valuation for new residential or commercial master permits) to clarify residential permit valuations and adding a new subsection 18.02.106.6.1 (Permit Fee for new residential and residential addition permits). The penalty being provided in Section 18.02.115 of the El Paso City Code	1	18.02.106.5
			2	18.02.106.6
			3 Added	18.02.106.6.1
18939	6-25-2019	An Ordinance authorizing the City Manager to sign a Contract of Sale, Special Warranty Deed and any other documents necessary to convey 15 acres of land more or less, being described as the West ½ and East ½ of the Southeast ¼ of the Northwest ¼ of the Southwest ¼, Section 17, Block 79, Township 3, Texas and Pacific Railway Surveys, El Paso County, Texas, to the Socorro Independent School District		Omitted
18940	7- 9-2019	An Ordinance approving Amendment Number Sixteen to the Project Plan and Reinvestment Zone Financing Plan for Tax Increment Reinvestment Zone Number Five, City of El Paso, Texas to provide funding to the Pioneer Plaza and Promenades Capital Improvement Project and certain project-specific developments subject to execution of a separate agreement(s) by and between the City and the project developer(s); adopting said amendment as required by Section 311.011(E) Texas Tax Code; and providing a severability clause		Omitted
18941	7- 9-2019	An Ordinance changing the zoning of the following real property known as: Parcel 1: Tract 12-A, Block 6, Ysleta Grant, City of El Paso, El Paso County, Texas, from R-3A/C (Residential/ Conditions) to A-O/C (Apartment-Office/Condition); and, Parcel 2: Tract 2, Block 6, Ysleta Grant, City of El Paso, El Paso County, Texas, From R-3A/C (Residential/Conditions) to A-O/C (Apartment-Office/Conditions); and, Parcel 3: Tract 3-B, Block 6, City of El Paso, El Paso County, Texas, from R-3A/C (Residential/ Conditions) to A-O/C (Apartment-Office/Condition), and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 8753 Muralla Way. Property Owner: Valle del Colibri, LLC. PZRZ17-00014		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18942	7- 9-2019	An Ordinance amending a condition placed on property by Ordinance No. 16813, which changed the zoning of: Parcel 1: Tract 12-A, Block 6, Ysleta Grant, City of El Paso, El Paso County, Texas, from R-3A/C (Residential/Conditions) to A-O/C (Apartment-Office/Condition); and, Parcel 2: Tract 2, Block 6, Ysleta Grant, City of El Paso, El Paso County, Texas, From R-3A/C (Residential/Conditions) to A-O/C (Apartment-Office/Conditions); and, Parcel 3: Tract 3-B, Block 6, City of El Paso, El Paso County, Texas, from R-3A/C (Residential/Conditions) to A-O/C (Apartment-Office/Condition), and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 8753 Muralla Way. Property Owner: Valle del Colibri, LLC. PZCR18-00001		Omitted
18943	7- 9-2019	An Ordinance changing the zoning of Tract 4H, Block 2, Ascarate Grant, City of El Paso, El Paso County, Texas from M-1 to C-4. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 6767 Gateway West Boulevard. Property Owner: Gateway Ventures, LLC. PZRZ19-00007		Omitted
18944	7- 9-2019	An Ordinance changing the zoning of the property described as Lot 32 and the east 16 ⅔ feet of Lot 31, Block 285, Pierce Finley, 1031 Arizona Ave, an addition to the City of El Paso, El Paso County, Texas from A-2 (Apartment) to S-D (Special-Development), pursuant to Section 20.04.360, and approving a Detailed Site Development Plan pursuant to Section 20.04.150 and 20.10.360 of the El Paso City Code to allow for professional office as permitted in the S-D (Special-Development) zone district. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 1031 Arizona Ave. Owner: Isidoro Garcia & Luz E. Marquez, PZRZ17-00028		Omitted
18945	7- 9-2019	An Ordinance changing the zoning of Lot 11, Block 52, Milagro Hills Addition Unit Six, 9925 Alcan St., City of El Paso, El Paso County, Texas from R-4 (Residential) to C-2 (Commercial), and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 9925 Alcan St. Owner: World of Life Ministries, Inc. PZRZ19-00008		Omitted
18946	7-23-2019	An Ordinance authorizing the city manager to execute the Second Amendment to Ordinance No. 018871, the Land Exchange Agreement between the City of El Paso and FSW Investments, LP, to extend the Inspection Period deadline; extend the required Closing Date; amend the notice provisions; and amend the Agreement to allow the Parties to begin re-zoning the Desert West Property and amend the Master Zoning Plan associated with the Northeast Property		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18947	7-23-2019	An Ordinance granting Special Permit No. PZST19-00001, to allow for a 60 ft. Ground-mounted Personal Wireless Service Facility on the property described Lots 12 and 13, Block 12, Womble, 5655 Gateway West Boulevard, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.455 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 5655 Gateway West Boulevard. Property Owner: Lucmor, LLC. PZST19-00001		Omitted
18948	7-23-2019	An Ordinance granting Special Permit No. PZST19-00006 to allow for an Off-Site Parking (Serving Another Property) on the property described as Lots 13-20, Block 79, Alexander Addition, 211 Schuster Ave, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.240 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 211 Schuster. Property Owner: El Paso Healthcare System, Ltd		Omitted
18949	7-23-2019	An Ordinance releasing all conditions placed on property by special contract approved on May 28th, 1985 which were imposed in the change of the zoning of portion of Lot 1, Block 2, Rubin Heights Subdivision, a subdivision of the City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 550 Rubin Drive. Property Owner: Young Women's Christian Association El Paso Del Norte Region. PZCR19-00001		Omitted
18950	7-23-2019	An Ordinance releasing Condition No. 2 placed on property by Ordinance 9196 approved on October 27, 1987 which were imposed in the change of the zoning of portion of Lot 1, Block 1, 501 N Zaragoza Subdivision, a subdivision of the City of El Paso, El Paso County, Texas and all conditions placed on property by Ordinance 10141 approved on July 3, 1990 which were imposed in the change of the zoning of portion of Lot 1, Block 1, 501 N Zaragoza Subdivision, a subdivision of the City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 501 N Zaragoza Owner: Bemity Global, LLC. PZCR19-00005		Omitted
18951	7-23-2019	An Ordinance releasing all conditions placed on property by Ordinance 10141 approved on July 3, 1990 which were imposed in the change of the zoning of portion of Lot 1, Block 1, 501 N Zaragoza Subdivision, a subdivision of the City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 501 N Zaragoza Property Owner: WestStar Bank, a Texas banking corporation. PZCR19-00006		Omitted
18952	7-23-2019	An Ordinance amending Title 13 (Streets, Sidewalks, and Public Places), Chapter 13.20 (Miscellaneous Street and Sidewalk Use Regulations), Section 13.20.120 (Waste Container Franchises), Subsection C (Terms of Each Franchise), Paragraph 1, to allow for five year franchise terms and decrease the amount of notice required to request a term extension	1	13.20.120 C.1

Ordinance Number	Approval Date	Description	Section	Section this Code
18953	7-23-2019	An Ordinance granting a non-exclusive franchise to "River Elms, LLC" to place and maintain up to 150 waste containers on sidewalks and other City property within the City of El Paso, subject to the terms and conditions described in the Ordinance		Omitted
18954	7-23-2019	An Ordinance granting a non-exclusive franchise to "Valu Advertising, LLC" to place and maintain up to 150 waste containers on sidewalks and other City property within the City of El Paso, subject to the terms and conditions described in the Ordinance		Omitted
18955	7-23-2019	An Ordinance annexing the following real property described as a Portion of Section 28, Block 79, Township 2, Texas and Pacific Railway Company Surveys, El Paso County, Texas. SUAX19-00001		Omitted
18956	8- 6-2019	An Ordinance authorizing the issuance of "City of El Paso, Texas, Water and Sewer Revenue Refunding Bonds, Series 2019A" in one or more series to refund certain previously issued obligations of the City; and resolving matters which are necessary to effect such issuance, including the delegation of matters relating to the sale and issuance of the bonds to an authorized City officer or employee within certain specified parameters		Omitted
18957	8- 6-2019	An Ordinance annexing the following real property described as a Portion of Triumph Street, Horizon Estates Unit 54, El Paso County, Texas. SUAX17-00003		Omitted
18958	8- 6-2019	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.150 (Schedule XIV-Speed Limits), Subsections F (thirty-five miles per hour), G (forty miles per hour) and H (forty-five miles per hour) to establish maximum speed limits on portions of Mike Price Drive, G R Campuzano Drive, Enchanted Springs Drive, Northwestern Drive, San Felipe Drive, Justice Street, and Tim Floyd Street. The penalty being provided in Section 12.84.010 of the El Paso City Code	1 Added	12.88.150 F.102—106
			2 Added	12.88.150 G.47
			3 Added	12.88.150 H.39
18959	8- 8-2019	An Emergency Ordinance of the City of El Paso, Texas extending the local disaster declaration resulting from an active shooter incident on August 3, 2019		Omitted
18960	8-20-2019	An Ordinance amending Title 9 (Health and Safety), Chapter 9.02 (Department of Public Health), Section 9.02.040 (Fees-Clinics and Laboratory), Subsection A, to expand and clarify the types of public health services for which fees may be charged	1	9.02.040 A.
18961	8-13-2019	An Ordinance ordering a Bond Election to be held in the City of El Paso, Texas, on November 5, 2019, making provisions for the conduct of the election and resolving other matters incident and related to such election		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18962	8-20-2019	An Ordinance restating the City of El Paso Texas Zone Schedule No. 1: Rates, Rules, Charges and Regulations applying at Foreign-Trade Zone No. 68, and amending the fees listed therein to authorize the City Council to set all related fees through Schedule C of the City's Annual Budget Resolution and to revise the Tariff Schedule for the same purpose; and rescinding Ordinances 018064, 018223, 018402 and 018558 which amended, updated and re-stated the Zone Schedule No. 1		Omitted
18963	8-20-2019	An Ordinance amending Ordinance No. 8765 by releasing conditions No. 1 and No. 2 and releasing all conditions placed on the property by Ordinance No. 9264, which changed the zoning of a portion of Lot 1, Block 5, Mesa Hills Plaza, City of El Paso, El Paso County, Texas. The penalty being as provided in Chapter 20.24 of the El Paso City Code. The proposed condition release meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 5450 Hurd Place. Property Owner: Mesa Hills LLC and Hurd Court LP. PZCR19-00003		Omitted
18964	8-20-2019	An Ordinance changing the zoning of Lots 1 & 2, Block 1, Plat of Sierra Vista Acres, an addition to the City of El Paso, El Paso County, Texas from A-2 (Apartment) to C-3 (Commercial), and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: Northeast corner of Gateway North Blvd. & Lawrence Ave. Owner: EP Rojas Partners, LP. PZRZ19-00004		Omitted
18965	8-20-2019	An Ordinance annexing real property described as a Portion of Section 15, Block 79, Township 3, Texas and Pacific Railway Company Surveys, El Paso County, Texas. SUAX17-00001		Omitted
18966	8-20-2019	An Ordinance amending Title 13 (Streets, Sidewalks and Public Places), Chapter 13.24 (City Parks and Recreation Areas), Section 13.24.200 (Park and Recreation Facility use and fee authorization) of the El Paso City Code. In particular, Title, Chapter, Section 13.24.200-deleting subsection F, setting a cost recovery rate for sports complexes	1 Rpld	13.24.200 F.
18967	8-20-2019	An Ordinance levying FY 2019-2020 taxes		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18968	9- 3-2019	An Ordinance amending Title 5 (Business License and Permit Regulations), Chapter 5.01 (General); Chapter 5.02 (Alcoholic Beverages); Chapter 5.03 (Amplified Sound Permit); Chapter 5.04 (Flea Market Operator); Chapter 5.05 (Public Swimming Pool Licenses); Chapter 5.06 (Home Occupation License); Chapter 5.07 (Boarding Home Facilities); Chapter 5.08 (Laundries); Chapter 5.09 (Sexually Oriented Businesses); and Chapter 5.10 (Tattoo and Body Art Studio Registration and Artist License) of the El Paso City Code to allow additional designated City employees to enforce Title 5 and conduct corresponding inspections and investigations, the penalty being as provided in Section 5.01.100 (Violation, Penalty); Section 5.02.170 (Violations and Penalties); Section 5.03.130 (Violation); Section 5.04.010 (Flea Market Operator License Provisions), Paragraph C (Enforcement-Penalty); Section 5.05.160 (Violations and Penalties); Section 5.06.020 (Home Occupation License Provisions), Paragraph G (Enforcement-Penalty); Section 5.07.150 (Offenses and Criminal Penalties); Section 5.09.150 (Penalties and Enforcement); Section 5.10.180 (Violation and Penalties), respectively, of the El Paso City Code	1 Added	5.01.005
			2	5.01.010
			3	5.01.080
			4	5.01.090 B.
			5	5.02.070 C., D.
			6	5.03.040 B.3, 4
			7	5.03.090 F.
			8	5.03.110 E.
			9	5.03.120
			10	5.04.010 C.1
			11	5.05.020 B., C.
			12	5.05.150
			13	5.06.020 G.1
			14	5.07.010
			15	5.07.020 A., C.
			16	5.07.030
			17	5.07.040 A.
			18	5.07.120
			19	5.07.130
			20	5.07.140
			21	5.08.010
			22	5.08.020 C.
			23	5.08.030
			24	5.08.170
			25	5.09.020
			26	5.09.060
			27	5.09.100

Ordinance Number	Approval Date	Description	Section	Section this Code
			28	5.10.020 E., F.
			29	5.10.110
			30	5.10.160
18969	9- 3-2019	An Ordinance ratifying the 2015 Edition of the International Fire Code and Amending Title 9 (Health and Safety), Chapter 9.52 (Fire Prevention Code), of the El Paso City Code, to provide for local amendments to the 2015 International Fire Code, the penalty being as provided in Section 9.52.030.12 (Violation Penalties) of the El Paso City Code	1 Rpld	Ch. 9.52, 9.52.010—9.52.240
			Added	Ch. 9.52, 9.52.010—9.52.220
18970	9- 3-2019	An Ordinance amending Title 2 (Administration and Personnel), Chapter 2.16 (Zoning Board of Adjustment), Section 2.16.040 (Appeals), and Section 2.16.050 (Special Exceptions), to comply with changes enacted by the Texas Legislature during the 86th legislative session under H.B. 2497 and H.B. 2439 regarding appeals to the Zoning Board of Adjustment and regulations pertaining to the use of building materials used in the construction or renovation of residential or commercial buildings. The penalty being provided in Chapter 20.24 (Enforcement-Penalty) of the El Paso City Code	1	2.16.040
			2	2.16.050 J.3
18971	9- 3-2019	An Ordinance amending Title 19 (Subdivision and Development Plats), Article 1 (Platting Procedures), Chapter 19.01 (Provisions Applicable to all Platting Procedures), Section 19.01.040 (Time for decision on Plats and Land Studies); Chapter 19.02 (Land Studies), Section 19.02.020 (Application Procedures) and Section 19.02.030 (Decision); Chapter 19.03 (Preliminary Plats), Section 19.03.020 (Application and Procedures) and Section 19.03.030 (Decision); Chapter 19.04 (Final Plat), Section 19.04.020 (Application and Procedures) and Section 19.04.030 (Decision); Chapter 19.07 (Revisions to Recorded Plats), Section 19.07.010 (General Requirements for Plat Revisions) and Section 19.07.020 (Replats Without Vacation) and Section 19.07.030 (Special Replat Requirements) and Section 19.07.040 (Amending Plats); Chapter 19.08 (Construction Plans and Management), Section 19.08.010 (Subdivision Improvement Plans) and Section 19.08.020 (Timing of Public Improvements, Permit Issuance); and Title 19 (Subdivision and Development Plats), Article 4 (Specific Application and Processing Requirements), Chapter 19.38 (Notice Requirements), Section 19.38.020 (Personal Notice for Replats) of the El Paso City Code to comply with changes made by the Texas Legislature during the 86th Legislative Session under H.B. 3167 and H.B. 3314 regarding municipal approval procedure for land development applications and certain requirements related to subdivision plats. The penalty is as provided under Chapter 19.42 of the El Paso City Code	1	19.01.040
			2	19.02.020
			3	19.02.030
			4	19.03.020
			5	19.03.030

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			6	19.04.020
			7	19.04.030
			8	19.07.010
			9	19.07.020
			10	19.07.030
			11	19.07.040
			12	19.08.010
			13	19.08.020
			14	19.38.020
18972	9- 3-2019	An Ordinance amending Title 20 (Zoning), Chapter 20.06 (Zoning Districts and Map), Section 20.06.075 (Annexation Procedures) of the El Paso City Code to comply with changes made by the Texas Legislature during the 86th legislative session under H.B. 347 and S.B. 1303 regarding annexation procedures. The penalty is as provided under Chapter 20.24 of the El Paso City Code	1 Rpld	20.06.075
			Added	20.06.075
18973	9- 3-2019	An Ordinance amending Title 20 (Zoning), Chapter 20.10 (Supplemental Use Regulations), Section 20.10.035 (Accessory Dwelling Unit (ADU)), Subsection 20.10.035(A), Subsection 20.10.035(A)(12) of the El Paso City Code to comply with changes made by the Texas Legislature during the 86th legislative session under H.B. 2439 regarding regulations adopted by governmental entities for building products, materials, or methods used in the construction or renovation of residential or commercial buildings. The penalty is as provided under Chapter 20.24 of the El Paso City Code	1	20.10.135 A.12
18974	9- 3-2019	An Ordinance amending Title 20 (Zoning), Chapter 20.18 (Sign Regulations), Article III (Billboard Regulations), Section 20.18.220 (Size and Height), Subsection 20.18.220(A) of the El Paso City Code to comply with changes made by the Texas Legislature during the 86th legislative session under H.B. 357 regarding the height outdoor advertising signs regulated by the Texas Department of Transportation. The penalty is as provided under Chapter 20.24 of the El Paso City Code	1	20.18.220 A.
18975	9- 3-2019	An Ordinance amending Title 20 (Zoning), Chapter 20.20 (Historic Landmark Preservation), Section 20.20.040 (Procedure for Designation of Historic Landmarks and Districts) of the El Paso City Code to comply with changes made by the Texas Legislature during the 86th legislative session under H.B. 2496 regarding property owner consent regarding designation of local historic landmarks. The penalty is as provided under Section 20.20.140 of the El Paso City Code	1	20.20.040 A.

Ordinance Number	Approval Date	Description	Section	Section this Code
18976	9- 3-2019	An Ordinance amending Title 21 (Smartcode), Chapter 21.50 (Building Scale Plans), Section 21.50.140 (Architectural Standards), and Chapter 21.70 (Definition of Terms), Section 21.70.010 (Definitions), to comply with changes enacted by the Texas Legislature during the 86th legislative session under H.B. 2439 and H.B. 3167 regarding regulations pertaining to the use of building materials used in the construction or renovation of residential or commercial buildings and municipal approval procedure for land development applications. The penalty being as provided in Section 21.60 of the El Paso City Code	1	21.50.140
			2	21.70.010
18977	9- 3-2019	An Ordinance changing the zoning of Parcel 1: A portion of Blocks 10, 11, 14 and a portion of closed alley and closed Rogelio Street, Highland Park Addition, 1155 Idaho St. Parcel 2: Lots 1 and 2, Block 10, Highland Park Addition, 1931 Atlanta Ave., City of El Paso, El Paso County, Texas from R-5 (Residential) to C-1 (Commercial) and imposing a condition, the penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 1155 Idaho St. & 1931 Atlanta Ave. Owner: University Behavioral Health of El Paso, LLC by Ascend Health Corporation; PZRZ18-00042		Omitted
18978	9- 3-2019	An Ordinance changing the zoning of the property described as Lot 6, Block 10, Eastwood Section 1, 7812 Bois D'Arc Drive, City of El Paso, El Paso County, Texas from R-3 (Residential) to S-D (Special Development), pursuant to Section 20.04.360, Approving a Detailed Site Development Plan pursuant to Section 20.04.150 and 20.10.360 of the El Paso City Code to allow for medical office as permitted in the S-D (Special Development) zone district. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 7812 Bois D'Arc Drive Owner: Martin R. Celis and Vanessa S. Celis; PZRZ19-00011		Omitted
18979	9- 3-2019	An Ordinance changing the zoning of a portion of Tract 6B, Block 35, Ysleta Grant Survey, and a portion of Tracts 1 and 2, O.C. Coles Survey, City of El Paso, El Paso County, Texas from A-2 (Apartment) and R-F (Ranch Farm) to R-4 (Residential). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 183 S. Davis Drive, 8600 & 8590 Alameda Avenue. Property Owner: Ysleta Independent School District, LLC. PZRZ19-00005		Omitted
18980	9- 3-2019	An Ordinance authorizing the city manager to sign a Contract of Sale, Special Warranty Deed and any other documents necessary to convey 6.325 acres of land, more or less, being described as Lot 3, Block 1, Coronado Del Sol, an Addition to the City of El Paso, El Paso County, Texas, to the Housing Authority of the City of El Paso for the purchase price of $826,551.00		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18981	9-17-2019	An Ordinance changing the zoning of Lot 1-4, Ranchland Commercial District Unit No. 2, 7750 Gateway Boulevard East, City of El Paso, El Paso County, Texas from C-1 (Commercial) to C-3 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 7750 Gateway Boulevard. Property Owner: Snap Properties LP. PZRZ19-00015		Omitted
18982	9-17-2019	An Ordinance changing the zoning of a portion of Lot 1, Block 1, CVS Subdivision, City of El Paso, El Paso County, Texas from C-1/C (Commercial/Condition) to G-MU/C (General Mixed Use/Condition) and approving a Major Amendment to the Adopted Master Zoning Plan and Master Zoning Plan Report. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning and master zoning plan amendment meet the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 2501 Mesa Street. Owner: MIMCO. PZRZ18-00052		Omitted
18983	9-17-2019	An Ordinance vacating a portion of a public easement within a portion of Lot 1, Block 1, CVS Subdivision, City of El Paso, El Paso County, Texas. Subject Property: South of Boston and East of Oregon. Property Owner: 2501 Mesa, LLC. SUET19-00001		Omitted
18984	9-17-2019	An Ordinance vacating an eight-foot public utility easement located within a portion of Tract 6, Franklin Place, City of El Paso, El Paso County, Texas. Subject Property: 8919 Otyokwa; Applicant: David Aragon; SUET19-00004		Omitted
18985	10- 1-2019	An Ordinance changing the zoning of the property described as The West 8 feet of Lot 27, all of Lot 28, and the East 17 feet of Lot 29, Block 93, Supplemental Map No. 1 of East El Paso, 3220 Montana Ave. an addition to the City of El Paso, El Paso County, Texas from R-5 (Residential) to S-D (Special Development) pursuant to Section 20.04.360, and approving a Detailed Site Development Plan pursuant to Section 20.04.150 and 20.10.360 of the El Paso City Code to allow for medical treatment facility as permitted in the S-D (Special Development) zone district. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 3220 Montana Ave. Owner: Estrada Luz de Lumbre Properties, Inc.; PZRZ19-00003		Omitted
18986	10- 1-2019	An Ordinance vacating all of the 20-foot alley, Block 253, Campbell's Addition, El Paso, El Paso County, Texas. Subject Property: North of Wyoming and South of Yandell. Applicant: Church of St. Clement of El Paso, Texas. SURW17-00007		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18987	10- 1-2019	An Ordinance granting a Special Privilege License to Texas Tech University Health Sciences Center at El Paso for the construction, installation, maintenance and use of the subsurface telecommunication fiber optic conduits and irrigation water piping for future use to support the needs of a new medical science building within portions of city right-of-way along Rick Francis just north of the intersection with Alameda and just south of the intersection with Robert Brown adjacent to the property located at 5001 El Paso Drive, El Paso, Texas: setting the license term for a term of fifteen years (15) with one (1) renewable fifteen (15) year term. Subject Property: 5001 El Paso Drive Property Owner: Texas Tech University Health Sciences Center of El Paso. NESV2019-00001		Omitted
18988	10- 1-2019	An Ordinance amending 4(b), Ordinance No. 14978 providing for the taxation of motor vehicles leased for personal use to amend the definition of a Motor Vehicle presumed to be used primarily for activities that do not involve the production of income		Omitted
18989	10-15-2019	An Ordinance granting Special Permit No. PZST19-00007, to allow for infill development with reductions in the required front and street side yard setbacks, and a reduction in the minimum number of required parking spaces, and to rescind Special Permit SP90-20 on the property described as a portion of Lots 11, 12, 13, and 14, Block 2, Alexander Addition (404 E. Arizona Avenue), City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. The proposed special permit meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 404 E. Arizona Avenue. Owner: LEFT Investments, LLC PZST19-00007		Omitted
18990	10-15-2019	An Ordinance changing the zoning of Section 15, Block 79, Township 3, Texas and Pacific Railway Company Surveys, City Of El Paso, El Paso County, Texas from R-F to R-3A. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: North of Pellicano Drive and East of Dominic Anakin Drive. Property owner: Cuesta del Sol, Inc. PZRZ19-00017		Omitted
18991	10-15-2019	An Ordinance amending the Future Land Use Map contained in "Plan El Paso" for the property legally described as Section 15, Block 79, Township 3, Texas and Pacific Railway Company Surveys, City Of El Paso, El Paso County, Texas, from O6, Potential Annexation, to G4, Suburban. Subject Property: North of Pellicano Drive and East of Dominic Anakin Drive. Property Owner: Cuesta del Sol, Inc. PLCP19-00001		Omitted
18992	10-15-2019	An Ordinance amending Ordinance 7861 to amend the Bingo Prize Fee imposed by the City of El Paso to 50 percent of the 5 percent Bingo Prize Fee collected by authorized organizations within the City of El Paso on Prizes of more than $5.00		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
18993	10-15-2019	An Ordinance amending Title 12, Chapter 12.88 (Schedules), Section 12.88.180 (No stopping or standing - Tow-away zone), Subsection A, Subsection 15 of the El Paso City Code, to delete the parking and standing prohibition on both sides of Coles Street from Second Avenue to Paisano Drive. The penalty being provided in Chapter 12.84 of the El Paso City Code	1	12.88.180 A.15
18994	10-15-2019	An Ordinance vacating vehicular traffic use for portions of South Oregon Street, South Mesa Street, South Kansas Street, and Park Street which intersect with State Loop 375, Border West Expressway		Omitted
18995	10-29-2019	An Ordinance terminating Tax Increment Reinvestment Zone Number Twelve, City of El Paso, Texas. Dissolving the Tax Increment Fund for the Zone; Dissolving the Board of Directors for the Zone; and providing and effective date		Omitted
18996	10-29-2019	An Ordinance approving amendment number two to the final project plan and finance plan for Tax Increment Reinvestment Zone Number Eleven, the City of El Paso, Texas; and establishing a Sales Tax and Use Tax Increment contribution by the City of the Zone's Tax Increment Fund		Omitted
18997	10-29-2019	An Ordinance granting a special privilege license to Summit Indigo EP LLC. to permit the construction, installation, maintenance, use, and repair of a surface encroachment of two (2) new planter beds over portions of city right-of-way along Main and Kansas streets adjacent to the property located at 325 N. Kansas street, El Paso, Texas Subject Property: 325 N. Kansas Property Owner: Summit Indigo EP, LLC. NESV2019-00008		Omitted
18998	10-29-2019	An Ordinance amending Title 19 (Subdivision and development plats), Article 2 (Subdivision Standards), Chapter 19.20 (Parks and Open Space), Section 19.20.070 (Deed conveyance) of the El Paso City Code, to clarify the requirements for the conveyance instrument and to allow for deferral of delivery of the conveyance instrument in circumstances where the obligation to install public improvements to serve a subdivision or development is deferred until after recordation of the final plat. The penalty is as provided in Chapter 19.42 of the El Paso City Code	1	19.20.070
18999	10-29-2019	An Ordinance changing the zoning of Tracts 4C, 4D, 4E, 4F, 4G, 4J, 4K, 4L, and 5, Block 8, Ysleta Grant, Texas, 343-345 Zaragoza Road, City of El Paso, El Paso County, Texas from R-F (Ranch-Farm) to C-1 (Commercial), and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: 343-345 Zaragoza Road. Property Owner: Iwaloye Properties, LLC and the Estate of Maria Germany. PZRZ19-00013		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19000	10-29-2019	An Ordinance amending Title 12, Chapter 12.88 (Schedules), Section 12.88.030 (Schedule III - Parking prohibited at all times on certain streets), Subsection 240 (Both sides of Westcity Court from Waymore Drive to Eubank Court) of the City Code to remove the parking restriction on the east side of Westcity Court from Waymore Drive to Eubank Court. The penalty being provided in Chapter 12.84 of the El Paso City Code	1	12.88.030
19001	11-12-2019	An Ordinance granting to Robert Mowad d/b/a Sign Design a non-exclusive franchise for waste containers on sidewalks and other City property		Omitted
19002	11-12-2019	An Ordinance amending the Regulating Plan placed on the property under Ordinance No. 018024 which changed the zoning of a 7.645 acre parcel of land legally described as being all of Lot 2 and a portion of Lots 1 and 3, University Center as filed in Volume 23, Page 35, El Paso County Deed Records, El Paso County, Texas from C-1 (Commercial) and C-3 (Commercial) to SCZ (Smartcode Zone). The Penalty is as provided for in Chapter 20.24 of the El Paso City Code. Subject Property: West of Mesa Street and East of Sun Bowl Drive; Owner: University of Texas. PLRP19-00007		Omitted
19003	11-26-2019	An Ordinance releasing a condition placed on property by Ordinance No. 7595 which changed the zoning of a portion of Lot 17, Block 193, Vista Del Sol Unit Thirty Three, 3012 Lee Trevino Drive, City of El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed condition release meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 3012 Lee Trevino Drive. Property Owner: EP JJJJ, LP. PZCR19-00007		Omitted
19004	11-26-2019	An Ordinance granting a Special Privilege license to Crosspointe Joint Venture for the continued use and maintenance of a sign which serves as advertisement for the shopping center within a portion of city right-of-way along Hondo Pass adjacent to the property located at 4717 Hondo Pass, El Paso, Texas; setting the license term for a term of twenty years (20) with one (1) renewable Twenty (20) year term. Subject Property: 4717 Hondo Pass Property Owner: Crosspointe Joint Venture NESV2019-00011		Omitted
19005	12-10-2019	An Ordinance Granting Special Permit No. PZST18-00008, to allow for a 74' Ground-Mounted Personal Wireless Service Facility on the property described as a Portion of Lot 1, Block 58, Vista Hills Unit 17, 12000 Montwood, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.455 of the El Paso City Code and imposing a condition. The Penalty being as provided for in Chapter 20.24 of the El Paso City Code. The proposed special permit meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 12000 Montwood. Owner: Board of Trustees of the Socorro Independent School District of El Paso PZST18-00008		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19006	12-10-2019	An Ordinance changing the zoning of a Portion of Section 28, Block 79, Township 2, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas, from R-F (Ranch-Farm) to R-MU (Residential Mixed Use). The Penalty is as provided for in Chapter 20.24 of the El Paso City Code. PZRZ19-00014		Omitted
19007	12-17-2019	An Ordinance amending Title 14 (Aircraft and Airports) of the El Paso City Code in its entirety to delete certain sections, delete weight limitations, make corrections to references to chapters, add procedures for issuance and denials of permits for the distribution of literature and solicitation of donations under Section 14.16.110, add new provisions for third party service agencies, clarify procedures for the issuance and denials of off-airport rental car business permits under Chapter 14.16, clarify appeal procedures for the denial, suspension, or revocation of an off-airport rental car business permit under Chapter 14.16, provide for the charging of fees throughout Title 14, make modifications to the penalty section, and minor corrections and minor references throughout Title 14. The penalty is as provided in Sections 14.04.040, 14.08.120, 14.16.021, 14.16.110, 14.16.163, 14.16.314, and 14.16.405 of the El Paso City Code.	Rpld	Tit. 14, Ch. 14.04, 14.04.010—14.04.040
			Rpld	Ch. 14.08, 14.08.010—14.08.130
			Rpld	Ch. 14.12, 14.12.010—14.12.220
			Rpld	Ch. 14.16, 14.16.010—14.16.407
			Rpld	Ch. 14.20, 14.20.010—14.20.250
			Rpld	Ch. 14.24, 14.24.010—14.24.140
			Rpld	Tit. 14, App. A
			1 Added	Tit. 14, Ch. 14.02, 14.02.010
			Added	Ch. 14.04, 14.04.010—14.04.060
			Added	Ch. 14.08, 14.08.010—14.08.130
			Added	Ch. 14.12, 14.12.010—14.12.220
			Added	Ch. 14.16, 14.16.005—14.16.407
			Added	Ch. 14.20, 14.20.010—14.20.240
			Added	Ch. 14.24, 14.24.020—14.24.140

Ordinance Number	Approval Date	Description	Section	Section this Code
19008	12-17-2019	An Ordinance changing the zoning of a portion of Lot 5, Block 6, Castner Range Subdivision No. 1, 4800 Woodrow Bean Transmountain Drive, City of El Paso, El Paso County, Texas from R-4 (Residential) to C-3 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the future land use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 4800 Woodrow Bean Transmountain Drive. Property Owner: MIMCO. PZRZ19-00030		Omitted
19009	12-17-2019	An Ordinance amending the Future Land Use Map (FLUM) contained in "Plan El Paso" for the properties legally described as Section 22, 23, 26, and 27, Block 80, Township 2, Texas and Pacific Railway Company Survey; and a Portion of Lot 1, Block 2, Butterfield Trail Aviation Park #2; and Lot 2, Block 2, Butterfield Trail Aviation Parks #2 Replat; and Lots 3 to 15, Block 2, and Lots 1 and 2, Block 3, Butterfield Trail Aviation Park #3, City of El Paso, El Paso County, Texas, from O7, Urban Expansion to G7, Industrial. The proposed comprehensive plan amendment is in accordance with the policies of Plan El Paso, the City's Comprehensive Plan. Subject Property: 100 Global Reach Drive. Property Owner: City of El Paso. PLCP19-00002		Omitted
19010	12-17-2019	An Ordinance changing the zoning of Section 22, 23, 26, and 27, Block 80, Township 2, Texas and Pacific Railway Company Survey; and a Portion of Lot 1, Block 2, Butterfield Trail Aviation Park #2; and Lot 2, Block 2, Butterfield Trail Aviation Parks #2 Replat; and Lots 3 to 15, Block 2, and Lots 1 and 2, Block 3, Butterfield Trail Aviation Park #3, City of El Paso, El Paso County, Texas from SCZ (SmartCode Zone) to C-4 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 100 Global Reach Drive. Property Owner: City of El Paso. PZRZ19-00022		Omitted
19011	12-17-2019	An Ordinance amending Title 15 (Public Services), Chapter 15.12 (Water and Sewer System) of the El Paso City Code by adding Section 15.12.015 (Utility franchise fee) in order for the grant of a franchise to the water and sewer utility managed by the Public Service Board for the operation and Maintenance of the water and sewer utility system and the assessment of a franchise fee of 2.75 percent of total operating revenues of the El Paso Water Utilities Public Service Board	1 Added	15.12.015
19012	1-21-2020	An Ordinance amending Title 15 (Public Services), Chapter 15.08 (Street Rentals), Section 15.08.150 (Shared mobility devices), to extend the evaluation period for the placement of shared mobility devices on the right-of-way to January 31, 2021. The Penalty is as provided in Section 15.08.150 of the El Paso City Code	1	15.08.150 C.

Ordinance Number	Approval Date	Description	Section	Section this Code
19013	1- 7-2020	An Ordinance authorizing the issuance of "City of El Paso, Texas Combination Tax and Revenue Certificates of Obligation, Series 2020"; levying a continuing direct annual ad valorem tax for the payment of such certificates; and resolving other matters which are necessary to effectuate such issuance, including the delegation of matters relating to the sale and issuance of such certificates to an authorized city official within certain specified parameters		Omitted
19014	1- 7-2020	An Ordinance authorizing the issuance of "City of El Paso, Texas, General Obligation Bonds, Series 2020" in one or more series; levying a continuing direct annual ad valorem tax for the payment of such bonds; and resolving other matters which are necessary to effectuate such issuance; including the delegation of matters relating to the sale and issuance of such bonds to an authorized City official within certain specified parameters		Omitted
19015	1- 7-2020	An Ordinance authorizing the issuance of "City of El Paso, Texas, Airport Revenue Refunding Bonds, Series 2020 (El Paso International Airport)" to refund certain previously issued obligations of the city; and resolving matters which are necessary to affect such issuance, including the delegation of authority relating to the sale and issuance of the bonds to an authorized city official within certain specified parameters		Omitted
19016	1- 7-2020	An Ordinance amending Title 20 (Zoning), Chapter 20.04 (Administrative Provisions), Article VII (Public Hearings), Section 20.04.520 (Notice); Title 20 (Zoning), Appendix A (Table of Permissible Uses); Title 20 (Zoning), Chapter 20.10 (Supplemental Use Regulations), Section 20.10.455 (Personal wireless service facilities) subsection A; Title 20 (Zoning), Chapter 20.10 (Supplemental Use Regulations), Section 20.10.455 (Personal wireless service facilities) subsection D; Title 20 (Zoning), Chapter 20.10 (Supplemental Use Regulations), Section 20.10.455 (Personal wireless service facilities) subsection E; Title 20 (Zoning), Chapter 20.10 (Supplemental Use Regulations), Section 20.10.455 (Personal wireless service facilities) subsection F; Title 20 (Zoning), Chapter 20.10 (Supplemental Use Regulations), Section 20.10.455 (Personal wireless service facilities) subsection G; and Title 20 (Zoning), Chapter 20.22 (Nonconforming Situations), Section 20.22.100 (Nonconforming PWSF) of the El Paso City Code to modify existing standards, update notification requirements, update the table of permissible uses; require compliance with a policy guide; to establish location preferences, clarify organization of the title; and provide for non-conforming situations. The penalty is as provided for in Chapter 20.24 of the El Paso City Code	1	20.04.520 B.2
			2(Exh. A)	Tit. 20, App. A, 17.00
			3	20.10.455 A.
			4 Rpld	20.10.455 D.—H.
			5 Added	20.10.455 D.
			6 Added	20.10.455 E.
			7(Exh. B) Added	20.10.455 F.
			8	20.22.100

Ordinance Number	Approval Date	Description	Section	Section this Code
19017	1- 7-2020	An Ordinance granting Special Permit No. PZST19-00009, to allow for a ballroom on the property described as a portion of Lot 2, Block 1, Aguirre Subdivision Unit 2, 6456 Doniphan Drive, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.240 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 6456 Doniphan Drive. Property Owner: Rio Bravo Investments, LLC. PZST19-00009		Omitted
19018	1- 7-2020	An Ordinance changing the zoning of the following real property known as: Parcel 1: Lots 3 and 4, Block 8, Rocket Warehouse Park Unit Two, City of El Paso, El Paso County, Texas, from C-4 (Commercial) and P-R1 (Planned Residential) to A-3 (Apartment); and, Parcel 2: a portion of Section 31, Block 80, TSP 1, Texas and Pacific Railroad Company Surveys and a portion of Lot 1, Block 1, Rocket Warehouse Park Unit Three City of El Paso, El Paso County, Texas, from A-M (Apartment/Mobile Home Park), C-4 (Commercial) and P-R1 (Planned Residential) to A-3 (Apartment); and, Parcel 3: A portion of Lot 1, Block 1, Rocket Warehouse Park Unit Three, City of El Paso, El Paso County, Texas, from P-R1 (Planned Residential) to A-3 (Apartment); the penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the future land use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 10405 Dyer Street. Property Owner: Textape Inc. PZRZ19-00021		Omitted
19019	1- 7-2020	An Ordinance amending Title 20, Chapter 20.02, Article II (Definitions) to add a definition for medical waste facility and amend the definition for heavy processing facility, Section 20.08.030(C) Appendix A (Table of Permissible Uses) to add medical waste facility, Chapter 20.10 (Supplemental Use Regulations) to add supplemental use regulations for medical waste facility, Section 20.14.020(C) Appendix C (Table of Parking Requirements and Standards) to add parking requirements for medical waste facility	1 Added	20.02.745
			2	20.02.742
			3 Added	Tit. 20, App. A, 5.27.5
			4 Added	20.10.490 C.
			5 Added	Tit. 20, App. C, 5.25.5

Ordinance Number	Approval Date	Description	Section	Section this Code
19020	1-21-2020	An Ordinance granting Special Permit no. PZST19-00002: to allow for off street parking (serving another property) in an R-5 (Residential) district on the property legally described as Lots 31 and 32, Block 101, East El Paso Addition, City of El Paso, El Paso, Texas; and to allow a 100% parking reduction on the property legally described as a Portion of Lot 5 and all of Lots 6 to 8, Block 101, East El Paso Addition, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed special permit meets the intent of the future land use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 3000 Douglas and 3011 Pershing. Owner: Hector Barragan and 3011 Pershing LLC PZST19-00002		Omitted
19021	2- 4-2020	An Ordinance approving Amendment Number Seventeen to the Project Plan and Reinvestment Zone Financing Plan for Tax Increment Reinvestment Zone Number Five, City of El Paso, Texas, to provide an increase in funding for the Downtown Management District's Commercial Façade Improvement Grant Program and to provide funding to a redevelopment project at 300 E. Main Street subject to execution of a separate agreement between the City and the project developer(s); adopting said amendments as required by Section 311.011(E) Texas Tax Code; and providing a severability clause		Omitted
19022	2- 4-2020	An Ordinance amending Ordinance No. 16090, granting a franchise to El Paso Electric Company, (as amended by Ordinances No. 17460 And 18772, amending the street rental charge) to reduce the restriction on the street rental charge; providing for additional compensation and assurances to the city; and providing consent as required in Section 15.08.013 of the City Code and Section 14(B) of Ordinance No. 16090 upon the terms and conditions described in this ordinance; the penalty as provided in City Code Section 15.08.040		Omitted
19023	2-18-2020	An Ordinance granting Special Permit No. PZST19-00011, to allow for a TV and radio broadcasting antennae on the property described as a portion of Lot 62 & 63, Pendale Industrial Units B & C, Correction Plat, 1075 Pendale Road, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.700 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 1075 Pendale Road. Property Owner: City of El Paso. PZST19-00011		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19024	2-18-2020	An Ordinance changing the zoning of the property described as Lots 17 & 18, Block P2, Garden Addition to Moeller's Subdivision, 613 Raynor St., City of El Paso, El Paso County, Texas from A-O/c (Apartment/Office/condition) to S-D/c (Special development/condition) pursuant to Section 20.04.360 and approving a detailed site development plan pursuant to Section 20.04.150 and 20.10.360 of the El Paso City Code to allow for commercial retail as permitted in the S-D (Special Development) zone district. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the future land use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 613 Raynor St.; Owners: Belen O. Solis; PZRZ19-00025		Omitted
19025	2-18-2020	An Ordinance changing the zoning of a portion of Tracts 12, 12B1, 12C and 12C3, Block 7, Ysleta Grant, Clint, 411 North Zaragoza Road, City of El Paso, El Paso County, Texas from C-1/SP (Commercial/Special Permit) to C-3/SP (Commercial/Special Permit). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the future land use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 411 N. Zaragoza, Owner: T-Zaragoza, LTD, PZRZ19-00026		Omitted
19026	2-18-2020	An Ordinance changing the zoning of a portion of Tract 3A2, Nellie D. Mundy Survey No. 240, City of El Paso, El Paso County, Texas from A-2 (Apartments) to R-3A (Residential). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the future land use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: La Puesta Dr., Owner: Tropicana Development, Inc. PZRZ19-00029		Omitted
19027	2-18-2020	An Ordinance changing the zoning of a portion of Lot 1, Block 237, Vista Del Sol Unit Forty Seven, 1791 Lee Trevino, City of El Paso, El Paso County, Texas from C-1/sc (Commercial/Special Contract) to C-3/sc (Commercial/Special Contract). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the future land use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 1791 Lee Trevino. Owner: Malber LLC. PZRZ19-00031		Omitted
19028	2-18-2020	An Ordinance amending Ordinance 8064 (Classification and Compensation Plan) to amend the introductory paragraph of Section 3 (Compensation plan), Section 3.2 (Procedures for Advancement within Pay Grade) and Section 3.10 (Professional/managerial plan) to replace references to "general services" and "professional managerial" with the term "unified services."		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19029	3- 3-2020	An Ordinance changing the zoning of the property described as Tracts 6A2, 7A2 and 8A1A, and A portion of Tracts 5A, 5A2, 6A, 8A1A, 8A1B, 9A, 10A7, and 10A8, Block 54, Ysleta Grant Surveys City of El Paso, El Paso County, Texas from A-O (Apartment/office/special contract) & C-3 (Commercial) to R-5 (Residential/special contract). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the future land use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: Northeast corner of Lee Treviño Dr. & Castner Dr.; Owners: Albert Saab, Richard l. Saab, Edward A. Saab, William C. Saab, Robert A. Saab, Andrew P. Saab, Sylvia A. Zychowski, Linda J. Kamos; PZRZ19-00002		Omitted
19030	3- 3-2020	An Ordinance changing the zoning of a portion of Tract 1A, Section 31, Block 80, Township 1, Texas and Pacific Railroad Company Surveys, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) and R-3 (Residential) to P-R I (Planned Residential I). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the future land use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: South of Sean Haggerty Drive and West of Dyer Street. Property Owner: Northtowne Village Joint Venture. PZRZ19-00027		Omitted
19031	3- 3-2020	An Ordinance changing the zoning of a portion of Tract 1A, Section 31, Block 80, Township 1, Texas and Pacific Railroad Company Surveys, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) and R-3 (Residential) to P-R I (Planned Residential I). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the future land use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: South of Sean Haggerty Drive and East of McCombs Street. Property Owner: Northtowne Village Joint Venture. PZRZ19-00028		Omitted
19032	3- 3-2020	An Ordinance amending the Future Land Use Map (FLUM) contained in "Plan El Paso" for the properties legally described as a portion of Tract 1-A-5, Section 31, Block 80, Township 1, Texas and Pacific Railroad Company Surveys, City of El Paso, El Paso County, Texas, from O-1, Preserve to G-3, Post-War. The proposed comprehensive plan amendment is in accordance with the policies of Plan El Paso, the City's Comprehensive Plan. Subject Property: South of Sean Haggerty Drive and West of Dyer Street. Property Owner: Northtowne Village Joint Venture. PLCP19-00003		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19033	3- 3-2020	An Ordinance amending the Future Land Use Map (FLUM) contained in "Plan El Paso" for the properties legally described as a Portion of Tract 1-A-6, Section 31, Block 80, Township 1, Texas and Pacific Railroad Company Surveys, City of El Paso, El Paso County, Texas, from O-1, Preserve to G-3, Post-War. The proposed comprehensive plan amendment is in accordance with the policies of Plan El Paso, the City's Comprehensive Plan. Subject Property: South of Sean Haggerty Drive and East of McCombs Street. Property Owner: Northtowne Village Joint Venture. PLCP19-00004		Omitted
19034	3- 3-2020	An Ordinance vacating a portion of city right-of-way over all of Linda Lane, Block 4, Upper Valley Surveys, City of El Paso, El Paso County, Texas. Subject Property: West of Montoya Drive at Linda Lane. Owner: William Kell as Trustee of the Cervantes Revocable Trust. SURW16-00005		Omitted
19037	3-17-2020	An Ordinance of the city council of the City of El Paso, Texas, amending Ordinance No. 017793 concerning Tax Increment Reinvestment Zone Number Six, City of El Paso, Texas, established Pursuant to Chapter 311 of The Texas Tax Code, to set the City participation rate and amend the boundaries of Tax Increment Reinvestment Zone Number Six, City of El Paso, Texas		Omitted
19038	3-17-2020	An Ordinance partially amending the Master Zoning Plan approved on August 12, 2008 By Ordinance No. 016959, as amended by Ordinance No. 017825 approved on July 17, 2012, pertaining to the approval of a rezoning of portions of Sections 9, 10, 15, 16, 17 and 18, Block 81, Township 1, Texas & Pacific Railway Company Surveys; Portions of Sections 11, 14, and 19, Block 81, Township 1, Texas & Pacific Railway Company Surveys; Portions of Sections 11, 12, 13, 14, 19, 20 and 21 Block 81, Township 1, Texas & Pacific Railway Company Surveys; and Portions of Sections 7, 17, 18, 19, 20, and 30 Block 80, Township 1, Texas & Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas to general mixed use and pertaining to the approval, and amendment, of a Master Zoning Plan. The partial amendment to the Master Zoning Plan under this ordinance only applies to the following tracts of land rezoned under Ordinance 016959: Tracts 1—8 (see ordinance for detailed description). The proposed Master Zoning Plan amendment meets the intent of the future land use designation for the property and is in accordance with Plan El Paso, The City's Comprehensive Plan. Subject Property: east of US Highway 54 and north of Loma Real Ave. Owner: City of El Paso PZRZ19-00032		Omitted
19039	3-17-2020	An Ordinance of the city council of the City of El Paso, Texas, amending Ordinance No. 018849 concerning Tax Increment Reinvestment Zone Number Thirteen, City of El Paso, Texas, established pursuant to Chapter 311 of the Texas Tax Code, to amend the boundaries, extend the term, and increase the city participation rate of Tax Increment Reinvestment Zone Number Thirteen, City of El Paso, Texas		Omitted
19040	3-17-2020	An Ordinance approving an amended project and financing plan for Tax Increment Reinvestment Zone Number Thirteen, City of El Paso, Texas; making various findings related to such plan; providing for severability; and providing an effective date		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19041	3-17-2020	An Ordinance vacating a twenty-foot utility easement out of Block 22, in Mills Addition, City of El Paso, El Paso County, Texas. Subject Property: 500 N. Mesa; Applicant: Mesa Franklin Venture, LLC; SUET19-00005		Omitted
19042	3-17-2020	An Ordinance granting a special privilege license to Mills Plaza Parking II, LP to permit the construction, installation, maintenance, use, and repair of an aerial encroachment of a vehicular crossing over portions of City right-of-way along San Antonio Avenue adjacent to the property located at 104 S. El Paso Street, El Paso, Texas; setting the license term for a term of Fifteen years (15) with one renewable fifteen-year term. NESV2019-00005		Omitted
19043	3-17-2020	An Ordinance amending Title 9 (Health and Safety), Chapter 9.36 (Air Pollution) of the El Paso City Code to rename the chapter as Air Quality, and to amend the chapter in its entirety to comply with applicable state air quality regulations; the penalty being as provided in Section 9.36.100 (Violations) of the El Paso City Code	1 Rpld	Ch. 9.36, 9.36.010—9.36.100
			Added	Ch. 9.36, 9.36.010—9.36.130
19044	3-17-2020	An Ordinance amending Title 9 (Health and Safety), Chapter 9.38 (Wood Burning) of the El Paso City Code to delete and reserve the chapter in its entirety	1 Rpld	Ch. 9.38, 9.38.010—9.38.060
19046	3-31-2020	An Ordinance granting Special Permit No. PZST20-00001, to allow for a 7-foot ground-mounted personal wireless service facility on the property described a portion of Lot 1, Block 1, El Paso Community College Valle Verde Campus, 919 Hunter Drive, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.455 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 919 Hunter Drive. Property Owner: El Paso Community College. PZST20-00001		Omitted
19047	3-31-2020	An Ordinance amending a condition placed on the property by Ordinance No. 17291 which changed the zoning of Lot 17, Block 258, Vista del Sol #45, 1900 Amy Sue Dr., City of El Paso, El Paso County, Texas, and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed condition amendment meets the intent of the future land use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 1900 Amy Sue Dr.; Owners: Tempe Thorn Rentals, LLC; PZCR19-00008		Omitted
19048	3-31-2020	An Ordinance authorizing the city manager to execute a Quitclaim (Tax Resale) Deed conveying to MJ Real Properties, Inc., all of the right, title and interest of the City of El Paso, and all other taxing units interested in the tax foreclosure judgment in the following described real property: North Portion of Lot 9 and the East ½ of Lot 10, (37.5 ft. on the North, 28.84 ft. on the East, 44.03 ft. on the South, 49.26 ft. on the West), Block 12, Sunset Heights, an addition to the City of El Paso, El Paso County, Texas		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19049	3-31-2020	An Ordinance amending Title 12, Chapter 12.88 (Schedules), Section 12.88.180 (No stopping or standing—Tow-away zone) of the El Paso City Code to add parking restrictions on Glenwood Street from El Paso Drive to Alameda Avenue, both sides	1 Added	12.88.080 A.116
19052	4-14-2020	An Ordinance repealing Ordinance No. 019028 which amended Ordinance 8064 (Classification and Compensation Plan) for the purpose of restoring "General Services" and "Professional Managerial" references that were replaced by the term "Unified Services" in the introductory paragraph of Section 3 (Compensation Plan), Section 3.2 (Procedures for Advancement Within Pay Grade) and Section 3.10 (Professional/Managerial Plan)		Omitted
19053	4-28-2020	An Ordinance changing the zoning of the property described as Lot 24 and the east 20.00 feet of Lot 25, Block 91, East El Paso Addition, 3422 Montana Avenue, City of El Paso, El Paso County, Texas from R-5 (Residential) to S-D (Special Development), pursuant to section 20.04.360, and approving a detailed site development plan pursuant to section 20.04.150 and 20.10.360 of the El Paso City Code to allow for an office as permitted in the S-D (Special Development) zone district. The penalty is as provided for in chapter 20.24 of the El Paso City Code. The proposed rezoning and detailed site development plan meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 3422 Montana Avenue, Owner: RESPCO LLC, PZRZ19-00034		Omitted
19054	4-28-2020	An Ordinance changing the zoning of a Portion of Lot 5 and All of Lots 6 to 10, Block 66, Hart Addition, City of El Paso, El Paso County, Texas, from A-O (Apartment/Office) and S-D (Special Development) to GMU (General Mixed Use), and approving a Master Zoning Plan. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 1007-1011 N. Mesa St.; Owners: ABANE Properties, Ltd.; PZRZ19-00036		Omitted
19057	5-12-2020	An Ordinance approving a detailed site development plan for a portion of Tract 1A, Section 31, Block 80, Township 1, Texas and Pacific Railroad Company Surveys, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.150. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: South of Sean Haggerty Drive and East of McCombs Street. Property Owner: Northtowne Village Joint Venture. PZDS19-00037		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19058	5-12-2020	An Ordinance changing the zoning of Tract 30, Block 29, Ysleta, 8149 Alameda Avenue, City of El Paso, El Paso County, Texas from R-4 (Residential) to C-1 (Commercial) and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 8149 Alameda Avenue; Owner: Yolanda E. Calderon; PZRZ19-00035		Omitted
19059	5-12-2020	An Ordinance amending Title 20 (Zoning), Appendix A (Table of Permissible Uses);Title 20 (Zoning), Chapter 20.10 (Supplemental Use Regulations), Section 20.10.455 (Personal Wireless Service Facilities), Subsection D; and Title 20 (Zoning), Chapter 20.10 (Supplemental Use Regulations), Section 20.10.455 (Personal Wireless Service Facilities) Subsection F of the El Paso City Code to update the Table of Permissible Uses and update the supplemental use regulations for Personal Wireless Service Facilities. The penalty is as provided for in Chapter 20.24 of the El Paso City Code	1	Tit. 20, App. A, Tbl. 17.00
			2	20.10.455 D.
			3	20.10.455 F.
19060	5-26-2020	An Ordinance granting Special Permit No. PZST20-00003, to allow for parking spaces (serving another property) on the property described as Lots 1 & 2, Block 20, Second Addition to Womble Addition, 401 & 405 Hardy Circle, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.260 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. Subject Property: 401 & 405 Hardy Circle. Property Owner: Old Dominion Freight Line, Inc. PZST20-00003		Omitted
19063	6-23-2020	An Ordinance changing the zoning of Lots 80 and 81, Sunrise Acres No. 2, 4805 Atlas Avenue and 4806 Titanic Avenue, City of El Paso, El Paso County, Texas, from RMU (Residential Mixed Use) to R-4 (Residential). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 4805 Atlas Ave. and 4806 Titanic Ave. Owner: Adobe Haciendas, Inc. PZRZ20-00004		Omitted
19064	6-23-2020	An Ordinance changing the zoning of Tracts 25C, 25D, and 25K, Section 38, Block 81, Township 1, T&P Railway Surveys, 9787 McCombs Street, City of El Paso, El Paso County, Texas from A-2 (Apartment) to C-1 (Commercial). The Penalty is as provided for in Chapter 20.24 of the El Paso City Code. The rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 9787 McCombs Street; Owners: McCombs Village LLC. PZRZ20-00003		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19065	6-23-2020	An Ordinance changing the zoning of Portion of Lots 1 and 2, Pendale Industrial Unit A Replat, and Tracts 18D, 19D, and 20, Block 54, Ysleta Grant, 8600 Gateway Blvd. East, City of El Paso, El Paso County, Texas from P-I (Planned Industrial) to C-4 (Commercial), and imposing that a Detailed Site Development Plan be submitted and approved as per Section 20.04.150 of the El Paso City Code prior to the issuance of any building permit. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 8600 Gateway Blvd East.; Owners: Kessler Commercial Properties LLC; PZRZ19-00033		Omitted
19066	6-23-2020	An Ordinance granting a Second Amendment to Lease with Transtelco, Inc., regarding the addition of existing underground conduit system in downtown El Paso for a Fiber Optic Cable Telecommunications System. As consideration, the Lessee shall pay for innerduct and fiber installation costs and the annual lease fee ($12,524.70) shall remain the same		Omitted
19069	7- 7-2020	An Ordinance of the City of El Paso, Texas approving the issuance of the "City of El Paso Downtown Development Corporation Special Revenue Refunding Bonds, Series 2020" by the City of El Paso Downtown Development Corporation, approving a Second Amendment to Master Lease Agreement related to such refunding bonds and approving other matters incident and related thereto		Omitted
19070	7- 7-2020	An Ordinance changing the zoning of all of Tract 1 and that portion of Tracts 2 and 3 lying East of the Playa Lateral, Block D, Christie Tract, 7860 Craddock Avenue, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) to R-1 (Residential). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Property Owner: Catholic Properties of El Paso. PZRZ20-00006		Omitted
19071	7- 7-2020	An Ordinance granting Special Permit No. PZST20-00006, to allow for a Planned Residential Development Overlay on the property described as all of Tract 1 and that portion of Tracts 2 and 3 lying East of the Playa Lateral, Block D, Christie Tract, 7860 Craddock Avenue, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.470 of the El Paso City Code. The Penalty being as provided in Chapter 20.24 of the El Paso City Code. Property Owner: Catholic Properties of El Paso. PZST20-00006		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19072	7- 7-2020	An Ordinance changing the zoning of Lot 120, Block 1, Sandstone Ranch #7 Replat B, Sean Haggerty Drive, City of El Paso, El Paso County, Texas from R-3A (Residential) to C-1 (Commercial), and imposing that a 10' landscaped buffer with high-profile native or naturalized trees of at least two-inch caliper and ten foot in height shall be placed at fifteen feet on center along the property lines adjacent to residential or apartment zone districts or uses. The landscaped buffer shall be irrigated and maintained by the property owner at all times and shall be installed prior to the issuance of any certificates of occupancy. The Penalty is as provided for in Chapter 20.24 of the El Paso City Code. The rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 11199 Sean Haggerty Drive; Owners: SNF 11169 Sean Haggerty, LLC. PZRZ20-00001		Omitted
19073	7-21-2020	An Ordinance amending a condition placed on the property by Ordinance No. 010366 which changed the zoning of Lot 1, Block 56, Mesquite Hills #10, 11881 Dyer Street, City of El Paso, El Paso County, Texas, and which imposed a condition. The Penalty is as provided for in Chapter 20.24 of the El Paso City Code. The condition amendment meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 11881 Dyer Street; Owners: IDEA Public Schools, LLC. PZCR20-00001		Omitted
19074	7-21-2020	An Ordinance approving a Detailed Site Development Plan for Lot 18, Block 24, Coronado Country Club Estates Unit 8 (1035 Los Jardines Circle), City Of El Paso, El Paso County, Texas, pursuant to section 20.04.150. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed detailed site development plan meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 1035 Los Jardines Circle. Owner: Barry D. Kahan and Marsha C. Capen PZDS20-00011		Omitted
19075	7-21-2020	An Ordinance Amending a Condition Placed on Property by Ordinance No. 17916 which changed the zoning of a Portion of Lot 1, Block 1, Pebble Hills Medical Center, 12660 Pebble Hills Boulevard, City of El Paso, El Paso County, Texas, and imposed conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed condition amendment meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 12660 Pebble Hills Boulevard. Owner: East El Paso SNF, LLC. PZCR19-00009		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19076	8- 4-2020	An Ordinance authorizing the issuance of "City of El Paso, Texas, Water and Sewer Revenue Refunding Bonds, Series 2020" and "City of El Paso, Texas, Water and Sewer Revenue Refunding Bonds, Taxable Series 2020A" to refund certain previously issued obligations of the City; and resolving matters which are necessary to effect such issuance, including the delegation of matters relating to the sale and issuance of the bonds to an authorized City officer or employee within certain specified parameters		Omitted
19077	8- 4-2020	An Ordinance amending Title 13 (Streets, Sidewalks and Public Places), Chapter 13.04 (Street and Sidewalk Construction and Maintenance), Section 13.04.015 (Sidewalk Permits and Fees), Subsection D; Title 13 (Streets, Sidewalks and Public Places), Chapter 13.36 (Parades and Public Assemblies), Section 13.36.030 (Permit Application), Subsection C (Application Form), Sub-subsection 4; and Title 13 (Streets, Sidewalks and Public Places), Chapter 13.36 (Parades and Public Assemblies), Section 13.36.030 (Permit Application), Subsection C (Application Form), Sub-subsection 6, to clarify that fees shall be in the amounts established in the annual budget resolution adopted by City Council	1	13.04.015 D.
			2	13.36.030 C.4
			3	13.36.030 C.6
19078	8- 4-2020	An Ordinance amending Title 19 (Subdivision and Development Plats) to add a new Article 7 (Fees) to clarify the fees applicable to all services provided under Title 19	1 Added	Tit. 19, Art. 7, Ch. 19.60, 19.60.010
19079	8- 4-2020	An Ordinance amending Title 18 (Building and Construction), Chapter 18.02 (Building and Construction Administrative Code), Section 18.02.106 (Permit Fees), Subsection 18.02.106.12 (Plan Review Options Available to the Applicant); and Title 18 (Building and Construction), Chapter 18.60 (Flood Damage Prevention), Article IV (Administration), Section 18.60.180 (Development Permit Procedures) to clarify that fees shall be in the amounts established in the annual budget resolution adopted by City Council and to establish new procedures for expedited review	1	18.02.106.12
			2 Added	18.60.180 D.
19082	8-18-2020	An Ordinance of the City of El Paso continuing and ratifying Title 10 (Public Peace, Morals, and Welfare), Sections 10.20.010 (Curfew Definitions); 10.20.020 (Curfew-Offenses); 10.20.030 (Curfew-Defenses); 10.20.040 (Curfew-Enforcement); 10.20.050 (Curfew-Violation-Penalty); 10.20.052 (Curfew-Construction) and 10.20.054 (Curfew-Review-Of-Ordinance). The penalty being as provided in Section 10.20.050 of the El Paso City Code	4, 5	10.20.010—10.20.054(note)
19083	8-18-2020	An Ordinance amending Title 14 (Aircrafts and Airports), Chapter 14.24 (Commercial Air Carriers Rates and Charges), Section 14.24.100 (Loading Bridge Charge), and Section 14.24.120 (Other Charges and Fees) of the El Paso City Code to update fees charged for uses at the El Paso International Airport	1	14.24.100
			2	14.24.120

Ordinance Number	Approval Date	Description	Section	Section this Code
19084	8-18-2020	An Ordinance waiving certain City of El Paso fees and costs associated with the establishment and operation of the Downtown Management District sponsored Downtown Outdoor Dining Area and Enhanced Downtown Sanitation Program, both of which may include encroachments on and/or rental of public right-of-way in Downtown El Paso during the 2020 calendar year and through January 5, 2021		Omitted
19085	8-18-2020	An Ordinance amending Title 20 (Zoning), Chapter 20.10 (Supplemental Use Regulations), Section 20.10.400 (Neighborhood Conservancy Overlay), Subsection F; and Title 20 (Zoning), Chapter 20.10 (Supplemental Use Regulations), Section 20.10.400 (Neighborhood Conservancy Overlay), Subsection G to clarify that fees shall be in the amounts established in the annual budget resolution adopted by City Council	1	20.10.400 F.
			2	20.10.400 G.
19086	8-18-2020	An Ordinance changing the zoning of Lots 1 and 2, Block 1, Pebble Hills Commercial, 12150 Pebble Hills Boulevard, City of El Paso, El Paso County, Texas from C-2/sc/sp (Commercial/special contract/special permit) to C-4/sc/sp (Commercial/special contract/special permit). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 12150 Pebble Hills Boulevard. Owner: WestStar Bank PZRZ20-00011		Omitted
19087	8-18-2020	An Ordinance Amending Title 7 (Animals) Of The El Paso City Code, Chapter 7.04 (Definitions And Administration), Section 7.04.010 (Definitions); Title 7 (Animals), Chapter 7.04 (Definitions And Administration), Section 7.04.060 (Zoonotic Disease Reporting Required); Title 7 (Animals), Chapter 7.04 (Definitions And Administration), Section 7.04.070 (Veterinary Care Of City-Owned Animals); Title 7 (Animals), Chapter 7.04 (Definitions And Administration), Section 7.04.080 (Violation-Penalty); Title 7 (Animals), Chapter 7.08 (Animals Generally), Section 7.08.020 (Abandonment-Reporting Violations); Title 7 (Animals), Chapter 7.08 (Animals Generally), Section 7.08.040 (Confinement Of Certain Animals), Paragraph A; Title 7 (Animals), Chapter 7.08 (Animals Generally), Section 7.08.050 (Standards For Animal Care), Paragraph H; Title 7 (Animals), Chapter 7.08 (Animals Generally), Section 7.08.060 (City-Owned Animals); Title 7 (Animals), Chapter 7.08 (Animals Generally), Section 7.08.070 (Use Of Strychnine And Other Poisons Prohibited); Title 7 (Animals), Chapter 7.08 (Animals Generally), Section 7.08.080 (Animal Regulation And Disease Control Department Services-Fees); Title 7 (Animals), Chapter 7.14 (Animal Sales, Breeding And Shows), Section 7.14.010 (Permits Required), Subsection A; Title 7 (Animals), Chapter 7.15 (Added), Sections 7.15.010-7.15.190 (Added) To Adopt Rules For Grooming Services; The Penalty Being As Provided In Section 7.04.080 Of The El Paso City Code	1	7.04.010
			2	7.04.060
			3	7.04.070

Ordinance Number	Approval Date	Description	Section	Section this Code
			4	7.04.080
			5	7.08.020 A
			6	7.08.020 C.4
			7	7.08.040 A
			8	7.08.050 H
			9	7.08.060
			10	7.08.070
			11	7.08.080
			12 Added	7.12.020 A.6
			13	7.14.010 A
			14	Ch. 7.15, 7.15.010—7.15.190
19088	8-18-2020	An Ordinance levying FY2021 taxes be it ordained by the city council of the city of El Paso: Section 1: That ad valorem taxes for the tax year ending December 31, 2020 to fund the City's budgetary requirements for the fiscal year ending August 31, 2021, be and are hereby levied on all property, real and personal, subject to taxation by the City, at the rate of $ 0.907301 per $100 of taxable value of said property. The tax rate consists of two components, each which are separately approved by Council: A. For General Purposes: $0.623847 per $100 of taxable value, the rate that, if applied to the total taxable value, will impose the amount of taxes needed to fund maintenance and operation expenditures of the City for the coming year. B. For Special Purposes: $0.283454 per $100 of taxable value, the rate that, if applied to the total taxable value, will impose the total amount published under Section 26.04(e)(3)(C) of the Texas Property Tax Code (Tax Code). This tax rate will raise more taxes for maintenance and operations than last year's tax rate. The tax rate will effectively be raised by 2.5 percent and will raise taxes for maintenance and operations on a $100,000 home by approximately $15.30. Section 2: Occupational Tax: There is hereby levied on every person, firm, association or corporation pursuing within the limits of the City of El Paso any occupation taxes by the State of Texas as authorized by City Council an annual tax equal to one-half of the occupation tax levied by the State of Texas		Omitted
19092	9- 1-2020	An Ordinance changing the zoning of the property described as Lots 29, 30, 31, and 32, Block 94, East El Paso Addition, 3100 and 3106 Montana Avenue, City of El Paso, El Paso County, Texas from A-2 (Apartment) and A-O (Apartment/Office) to S-D (Special Development), Pursuant to Section 20.04.360, and approving a Detailed Site Development Plan pursuant to Section 20.04.150 and 20.10.360 of the El Paso City Code to allow for a professional office as permitted in the S-D (Special Development) zone district. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 3100 and 3106 Montana Avenue. Applicant: Montana 3106, LLC. PZRZ20-00002		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19093	9- 1-2020	An Ordinance granting Special Permit No. PZST20-00002, to allow for a governmental use on the property described as Lot 1 and a portion of Lot 2, Block 103, Tierra Del Este #22 (12781 Edgemere Boulevard), City of El Paso, El Paso County, Texas, pursuant to section 20.04.320 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. The proposed special permit and detailed site development plan meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 12781 Edgemere Boulevard. Owner: City of El Paso PZST20-00002		Omitted
19094	9- 1-2020	An Ordinance changing the zoning of a portion of Tract 5C, 6C, and 7C, and all of Tract 8B, Block 55, Ysleta Grant, 9050 Escobar Drive, City of El Paso, El Paso County, Texas from A-M (Apartment/Mobile Home) and C-4 (Commercial) to R-3 (Residential). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 9050 Escobar Drive. Applicant: IDEA Public Schools PZRZ20-00007		Omitted
19095	9-15-2020	An Ordinance vacating a portion of City Right-of-Way over Lot 3, Block 2, Medano Heights Subdivision, City of El Paso, El Paso County, Texas. Subject Property: North of Redd Rd. and East of Interstate 10. Applicant: Housing Authority of the City of El Paso. SUET18-00002		Omitted
19096	9-15-2020	An Ordinance granting a Special Privilege License to the United States of America, acting by and through the Department of the Navy, Naval Facilities Engineering Command Southeast, as owner of the Naval Operations Support Center (NOSC) El Paso, to permit the continued use, maintenance and repair of a surface encroachment of curbing, guttering and security fence over a portion of city right-of-way along Truman Avenue and adjacent to the NOSC of El Paso located at 4810 Pollard Street, El Paso, Texas; setting the license term for one year with eight additional one year renewal options. Subject Property: 4810 Pollard. Applicant: United States of America, Department of the Navy, NESV2020-00002		Omitted
19100	9-29-2020	An Ordinance granting a Special Permit No. PZST20-00005, to allow for infill development with a reduction in lot width from the required 70 feet to 66 feet on the property described as Being North ½ of Lot 18, Chick-A-Dee, 10022 Chick-A-Dee, City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. The proposed special permit meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 10022 Chick-A-Dee Street Applicant: Casas Diamantina LLC. PZST20-00005		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19101	9-29-2020	An Ordinance changing the zoning of Tracts 55A, 52D, 54D AND 53B, Nellie D. Mundy Survey No. 241, 6391 Domingo Street, City of El Paso, El Paso County, Texas from R-3 (Residential) to R-5 (Residential). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 6391 Domingo Street. Applicant: Enrique Escobar PZRZ20-00005		Omitted
19102	9-29-2020	An Ordinance changing the zoning of Lot 5, and a portion of Lots 2, 4, and 6, Block 1, Rosemont Addition Replat C, 2300 McKinley Avenue, City of El Paso, El Paso County, Texas from R-4/SP (Residential/special permit) and R-4 (Residential) to PMD/SP (Planed Mountain Development/special permit). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 2300 McKinley Avenue. Applicant: Bienvivir Senior Health Services PZRZ20-00010		Omitted
19103	9-29-2020	An Ordinance granting to Paul Berube a non-exclusive franchise for waste containers on City property		Omitted
19104	9-29-2020	An Ordinance vacating a twenty-foot drainage easement out of Block 22 of the Mills Addition, City of El Paso, El Paso County, Texas. Subject Property: 500 N. Mesa, Applicant: Mesa Franklin Venture, LLC SUET19-00005		Omitted
19105	9-29-2020	An Ordinance amending Ordinance 8064 (Classification and Compensation Plan) to amend Section 4.5 (Observed Holidays) to add June 19 (Juneteenth) Holiday		Omitted
19106	10-13-2020	An Ordinance granting Special Permit No. PZST20-00007 to allow for infill development with a 0 foot rear setback and a 100% parking reduction on the property legally described as a portion of Lots 17 and 18, Block 24, Franklin Heights Addition, 710 Noble Street, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed special permit meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 710 Noble St. Applicant: Robert Palacios and Marycruz De Leon (PZST20-00007)		Omitted
19110	10-27-2020	An Ordinance approving amendment number eighteen to the Project Plan and Reinvestment Zone Financing Plan for Tax Increment Reinvestment Zone Number Five, City of El Paso, Texas, to allocate up to five percent of the Tax Increment Reinvestment Zone annual revenue to the administrative costs associated with zone management; and to provide funding to update the downtown wayfinding kiosks maps and the first phase of the downtown alleyway revitalization and street tree implementation project; adopting said amendments as required by Section 311.011(E) Texas Tax Code; and providing a severability clause		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19111	10-27-2020	An Ordinance amending Ordinance No. 018925, to update Elite Medical Transport of Texas, LLC, d/b/a Elite Medical Transport, franchise rates due to COVID-19 financial impacts to ambulance transfer service		Omitted
19112	10-27-2020	An Ordinance amending Title 2 (Administration and Personnel), Chapter 2.38 (Building and Standards Commission) Section of the El Paso City Code	1 Rpld	Ch. 2.38, 2.38.010—2.38.110
			Added	Ch. 2.38, 2.38.010—2.38.130
19113	10-27-2020	An Ordinance authorizing the city manager to sign a contract of sale, special warranty deed, and any other documents necessary to convey 0.7683 acres of land, more or less, being described as a portion of Tract 7, Laura E. Mundy Survey No. 237, El Paso, County, Texas, to Black Sea Acquisitions, L.P.		Omitted
19114	10-27-2020	An Ordinance authorizing the city manager to sign a contract of sale and warranty deed and any other documents necessary to convey to the El Paso Electric Company, a five-acre parcel of land in Tract 5, John Barker Survey No. 10, City of El Paso, El Paso County, Texas		Omitted
19116	11-10-2020	An Ordinance approving the recommendations of the Uptown Parking Benefit District Advisory Committee and amending Ordinance No. 018762 to allow the use of revenue from the District to fund the alley activation project		Omitted
19120	12- 8-2020	An Ordinance to correct Ordinance 018955 annexing the following real property described as a portion of Section 28, Block 79, Township 2, Texas and Pacific Railway Company Surveys, El Paso County, Texas. SUAX19-00001		Omitted
19124	12-15-2020	An Ordinance authorizing the city manager to sign a deed without warranty and any other documents necessary to convey 301.97 acres of land more or less, being described as a portion of Tract 18, Block 24, all of Tracts 3, 4, 5, and 8B, Block 25, and a portion of Tracts 8, 11, 12, 16A, and 17, and all of Tracts 9, 10, 13, 14A, 14B, 14C, 15A, 15B, 15C, and 16B, Block 26, all within Socorro Grant, City of El Paso, El Paso County, Texas to the El Paso County Water Improvement District No. 1		Omitted
19128	1- 5-2021	An Ordinance changing the zoning of a portion of Lot 1, Block 1, El Paso West, City of El Paso, El Paso County, Texas from M-1 (Light Manufacturing) to C-4 (Commercial). The penalty being as provided in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: South of Paseo Del Norte Boulevard and West of Northwestern Drive Applicants: FSW Investments LP PZRZ20-00021		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19129	1- 5-2021	An Ordinance granting Special Permit NO. PZST20-00008, to allow for a Planned Residential Development Overlay on the property described as Tracts 15-D, 16-G, and 16-H, Block 8, Upper Valley Surveys, 5545 Westside Drive, City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.470 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. The proposed special permit meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 5545 Westside Drive Applicants: David Fuller and Norma Garza PZST20-00008		Omitted
19130	1- 5-2021	An Ordinance granting Special Permit No. PZST20-00009, to allow for a parking reduction on the property described as Lots 1 to 5, Block 8, Sambrano Addition, 6700 Sambrano Avenue, City of El Paso, El Paso County, Texas, Pursuant to Section 20.14.070 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. The proposed special permit meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 6700 Sambrano Avenue Applicants: City of El Paso PZST20-00009		Omitted
19131	1- 5-2021	An Ordinance changing the zoning of a portion of Lots 17,18,19, and the West 15 Feet 7.5 inches of Lot 20, Block 30, Franklin Heights Addition, 1301 & 1305 Texas Avenue, City of El Paso, El Paso County, Texas from M-1 (Manufacturing) to G-MU (General Mixed Use), approving a Master Zoning Plan. The penalty being as provided in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 1301 & 1305 Texas Avenue. Applicants: Lucban, LLC. PZRZ20-00020		Omitted
19132	1-14-2021	An Ordinance amending Title 14 (Aircraft and Airports) Chapter 14.24 (Commercial Air Carriers Rates and Charges) to add Section 14.24.130 Daily Cargo Parking and Building Use Fee	1 Added	14.24.130
19133	1-19-2021	An Ordinance changing the zoning of portion of Tract 4G, Nellie D. Mundy Survey 240, City of El Paso, El Paso County, Texas from C-4/c (Commercial/conditions) to R-3A/c (Residential/conditions). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the adjacent Future Land Use designation south of the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: East of Resler Dr. and South of Woodrow Bean Transmountain Rd. Applicant: CSA Design Group, Inc., c/o Adrian Holguin-Ontiveros PZRZ20-00023		Omitted
19134	1-19-2021	An Ordinance amending Title 15 (Public Services), Chapter 15.08 (Street Rentals), Section 15.08.150 (Shared Mobility Devices), to update permit term and renewal requirements	1	15.08.150 C.

Ordinance Number	Approval Date	Description	Section	Section this Code
19138	2- 2-2021	An Ordinance amending Title 17 (Housing), Chapter 17.20 (Fair Housing Ordinance) of the El Paso City Code to amend in its entirety the Chapter to change the word handicap to disability and to include protections against discrimination for reasons of sexual orientation and gender identity	1 Rpld	Ch. 17.20, 17.20.010—17.20.150
			Added	Ch. 17.20, 17.20.010—17.20.150
19139	2-16-2021	An Ordinance amending Title 2 (Administration and Personnel), Chapter 2.92 (Ethics) of the El Paso City Code in its entirety to clarify the rules and procedures related to the ethical requirements of City officers and employees by reorganizing the structure to create three articles: Code of Ethics; Standards of Conduct; and ethics review commission; to amend, clarify and add definitions, to define the jurisdiction of the ethics review commission, and to streamline the complaint process. The penalty for violations of Chapter 2.92 (Ethics) of the El Paso City Code is provided in Section 2.92.200 (Disposition) as amended in this Ordinance	1 Rpld	Ch. 2.92, 2.92.010—2.92.120, 2.92.150
			Added	Ch. 2.92, 2.92.010—2.92.210
19143	3- 2-2021	An Ordinance authorizing the issuance of "City of El Paso, Texas, Water and Sewer Revenue Refunding Bonds, Series 2021" and "City of El Paso, Texas, Water and Sewer Revenue Refunding Bonds, Taxable Series 2021A" to refund certain previously issued obligations of the City; and resolving matters which are necessary to effect such issuance, including the delegation of matters relating to the sale and issuance of the bonds to an authorized City officer or employee within certain specified parameters		Omitted
19144	3- 2-2021	An Ordinance authorizing the issuance of "City of El Paso, Texas, Municipal Drainage Utility System Revenue Refunding Bonds, Taxable Series 2021" to refund certain previously issued obligations of the City; and resolving matters which are necessary to effect such issuance, including the delegation of matters relating to the sale and issuance of the bonds to an authorized City officer or employee within certain specified parameters		Omitted
19145	3- 2-2021	An Ordinance authorizing the issuance of "City of El Paso, Texas, Municipal Drainage Utility System Revenue Refunding Bonds, Series 2021A" to refund certain previously issued obligations of the City; and resolving matters which are necessary to effect such issuance, including the delegation of matters relating to the sale and issuance of the bonds to an authorized City officer or employee within certain specified parameters		Omitted
19146	3- 2-2021	An Ordinance authorizing the conveyance of real property owned by the City of El Paso to VTRE Development, LLC, for the purchase price of $18,600,000 such real property legally described as a portion of Lot 1, Block 1, El Paso West, as filed in Book 57, Page 5 of the plat records of El Paso County, Texas and located at the intersection of Desert Blvd. and Paso Del Norte		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19147	3- 2-2021	An Ordinance changing the zoning of a portion of Lots 2 & 3, Block 1, Las Terrazas Subdivision, 1351 and 1355 Zaragoza Rd., City of El Paso, El Paso County, Texas from C-1/C/SC (Commercial/condition/special contract) to C-4/C/SC (Commercial/condition/special contract). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 1351 and 1355 Zaragoza Rd. Applicant: Palo Verde Business Park, LLC; PZRZ20-00017		Omitted
19148	3- 2-2021	An Ordinance releasing all conditions placed on the property by Ordinance No. 7313 and 17870 which changed the zoning of Lot 2 & 3, Block 1, Las Terrazas Subdivision, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed condition release meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 1351 and 1355 Zaragoza Rd. Applicant: Palo Verde Business Park, LLC; PZCR20-00002		Omitted
19149	3- 2-2021	An Ordinance granting a special privilege license to EPCM Construction LLC, to permit the construction, installation, maintenance, use, and repair of an aerial encroachment of an exterior terrace, doubling as an overhang marking the main public entrance to the museum over a portion of city right-of-way along Main Street adjacent to the property located at 201 W. Main Drive, El Paso, Texas; setting the license term for a term of fifteen years with one renewable fifteen-year term. Subject property: 201 W. Main. Owner: City of El Paso NESV2020-00001		Omitted
19150	3- 2-2021	An Ordinance amending Title 2 (Administration and Personnel) Section 2.64 (Board of Trustees - Membership), subsection (A) in order to allow for electronic voting by City employees to elect Pension Board Trustees	1	2.64.030 A.
19152	3-16-2021	An Ordinance approving Amendment Number Nineteen to the Project Plan and Reinvestment Zone Financing Plan for Tax Increment Reinvestment Zone Number Five, City of El Paso, Texas, to allocate up to $150,000.00 of the Tax Increment Reinvestment Zone annual revenue to the downtown plan effort to support the development of a capital needs assessment; adopting said amendments as required by Section 311.011(E) Texas Tax Code; and providing a severability clause		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19153	3-16-2021	An Ordinance authorizing the conveyance of real property owned by the City of El Paso to the State of Texas, acting by and through the Texas Transportation Commission, for the purchase price of $23,320.00. Such real property legally described as a 301 square feet parcel(s) of land located in the Ysleta Town Tract Survey, Abstract No. 214, City of El Paso, El Paso County, Texas, being out of Tract 5c1 and Tract 5a, Block 55, of the Ysleta Grant, being out of land conveyed from El Paso County to El Paso County Water Control and Improvement District No. 1, by Commissioner's Court Deed, dated February 28, 1947, Volume 859, Page 320, Deed Records of El Paso County, Texas		Omitted
19154	3-16-2021	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.44 (Stopping, Standing and Parking Generally), Section 12.44.280 (Restrictions on Parking in Residential Parking Districts) to add a new subsection D to allow for the amendment of residential parking district restrictions and boundaries, replace the word Traffic Engineer with City Traffic Engineer; add "they" references to the City Traffic Engineer, Applicants, and Property Owners throughout the section; and correct the numbering of the section. Penalty is as described in Section 12.44.280, subsection S	1	12.44.280
19158	3-30-2021	An Ordinance approving Amendment Number Nineteen to the Project Plan and Reinvestment Zone Financing Plan for Tax Increment Reinvestment Zone Number Five, City of El Paso, Texas, to allocate up to $150,000.00 of the Tax Increment Reinvestment Zone annual revenue to the downtown plan effort to support the development of a capital needs assessment; adopting said amendments as required by Section 311.011(E) Texas Tax Code; and providing a severability clause		Omitted
19159	3-30-2021	An Ordinance authorizing the conveyance of real property owned by the City of El Paso to the State of Texas, acting by and through the Texas Transportation Commission, for the purchase price of $23,320.00. Such real property legally described as a 301 square feet parcel(s) of land located in the Ysleta Town Tract Survey, Abstract No. 214, City of El Paso, El Paso County, Texas, being out of Tract 5c1 and Tract 5a, Block 55, of the Ysleta Grant, being out of land conveyed from El Paso County to El Paso County Water Control and Improvement District No. 1, by Commissioner's Court Deed, dated February 28, 1947, Volume 859, Page 320, Deed Records of El Paso County, Texas		Omitted
19160	3-30-2021	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.44 (Stopping, Standing and Parking Generally), Section 12.44.280 (Restrictions on Parking in Residential Parking Districts) to add a new subsection D to allow for the amendment of residential parking district restrictions and boundaries, replace the word Traffic Engineer with City Traffic Engineer; add "they" references to the City Traffic Engineer, Applicants, and Property Owners throughout the section; and correct the numbering of the section. Penalty is as described in Section 12.44.280, subsection S		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19161	4-13-2021	An ordinance authorizing the issuance of City of El Paso, Texas Combination Tax and Revenue Certificates of Obligation, Series 2021A and Series 2021B; levying a continuing direct annual ad valorem tax for the payment of such certificates; and resolving other matters which are necessary to effectuate such issuance, including the delegation of matters relating to the sale and issuance of such certificates to an authorized city official within certain specified parameters		Omitted
19162	4-13-2021	An ordinance authorizing the issuance of City of El Paso, Texas, General Obligation Bonds, Series 2021 and General Obligation Refunding Bonds, Taxable Series 2021A; levying a continuing direct annual ad valorem tax for the payment of such bonds; and resolving other matters which are necessary to effectuate such issuance; including the delegation of matters relating to the sale and issuance of such bonds to an authorized city official within certain specified parameters		Omitted
19163	4-13-2021	An ordinance approving the issuance of the City of El Paso Downtown Development Corporation Special Revenue Refunding Bonds, Taxable Series 2021 (Downtown Ballpark Venue Project) by the City of El Paso Downtown Development Corporation, approving a third amendment to master lease agreement related to such refunding bonds and approving other matters incident and related thereto		Omitted
19164	4-13-2021	An ordinance amending Title 15 (Public Services), Chapter 15.08 (Street Rentals), Section 15.08.120 (Special Privilege Licenses and Permits), subsection (H) exceptions to add paragraph 12 signs may be located in the public right-of-way without the requirement of a sign permit or a Special Privilege, which meet the following criteria: (K) the sign may not be placed closer than twenty feet to a waste container placed in the right-of-way pursuant to a franchise agreement issued by the city; (J) the sign may not be placed in that area of a triangle formed by the intersecting property lines and a diagonal joining property line at points twenty feet from their intersection of any corner lot. The penalty is as provided for in Section 15.08.125 of the El Paso City Code	1	15.08.120 H.12
19165	4-13-2021	An ordinance vacating city right-of-way over Guadalupe Pass Drive right-of-way, Hueco Pass Drive right-of-way, and Picacho Pass Drive right-of-way within Butterfield Trail Aviation Park Unit Three, City of El Paso, El Paso County, Texas. Subject property: North of Montana Ave. and east of Global Reach Dr. Applicant: Brock & Bustillos, Inc. SURW21-00001		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19166	4-13-2021	An ordinance amending Title 9 (Health and Safety), Chapter 9.04 (Solid Waste Management), section 9.04.010 to address the need for safe access (NFSA) to residential properties by the environmental services department, promoting greater safety and improved customer service by providing the director of the department or appointee of the director the authority to establish a policy related to the need for the safe access (NFSA) for residential properties abutting a private street or alley and to require such property owner or citizen of the City of El Paso to adhere to that policy or, if adherence is not possible, said property owner shall be required to secure solid waste collection service from a permitted hauler other than the department in an effort to promote greater safety and improved service to the citizens of El Paso in the collection of solid waste and recyclables at residential properties through the City of El Paso	1	9.04.010
19167	4-13-2021	An ordinance amending Title 9 (Health and Safety), Chapter 9.12 (Food and Food Handling Establishments), Section 9.12.010 (Definitions) to include "kiosk" as an "establishment" as defined by Title 9; and to add a definition of "Kiosk"; and Section 9.12.070 (License-Categories-Term) to add "Kiosk" as a license category; the penalty as provided in Section 9.12.890 of the City Code	1	9.12.010
			2 Added	9.12.070 J.
19171	4-27-2021	An ordinance granting Dominion Ambulance, LLC, a franchise extension and amending Ordinance No. 018924, to modify its franchise rates, to operate a non-emergency ambulance transfer service		Omitted
19172	4-27-2021	An ordinance granting Elite Medical Transport of Texas, LLC d/b/a Elite Medical Transport, a franchise extension and amending Ordinance No. 018925, to modify its franchise rates, to operate a non-emergency ambulance transfer service; and repealing Ordinance No. 019111		Omitted
19173	4-27-2021	An ordinance granting Life Ambulance, Inc., a franchise extension and amending Ordinance No. 018926, to modify its franchise rates, to operate a non-emergency ambulance transfer service		Omitted
19174	4-27-2021	An ordinance changing the zoning of Lot 1, Block 123, Pebble Hills Subdivision Unit 14, 11201 Pebble Hills Boulevard, City of El Paso, El Paso County, Texas from R-4 (Residential) to R-3 (Residential). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the future land use designation for the property and is in accordance with Plan El Paso, the city's comprehensive plan. Subject property: 11201 Pebble Hills Blvd. Applicant: H2O Terra c/o Jose Hernandez PZRZ20-00024		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19175	4-27-2021	An ordinance granting Special Permit No. PZST21-00002, to allow for a planned residential development overlay on the property described as Lot 2, Block 1, Country Club Place South Side Replat "B," City of El Paso, El Paso County, Texas, pursuant to Section 20.10.470 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. The proposed special permit meets the intent of the future land use designation for the property and is in accordance with Plan El Paso, the city's comprehensive plan. Subject property: 4808 Vista Del Monte Street. Applicants: Lee J. Shamaley, Jr. PZST21-00002		Omitted
19176	4-27-2021	An ordinance granting Special Permit No. PZST20-00010 to allow for a professional office on the property described as Lots 29 and 30, Block 91, Basset's Addition, 2525 Montana Avenue, an addition to the City of El Paso, El Paso County, Texas, Pursuant to Section 20.04.260 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. The proposed special permit meets the intent of the future land use designation for the property and is in accordance with Plan El Paso, the city's comprehensive plan. Subject property: 2525 Montana Avenue. Applicants: Colt GELJ Properties, LLC PZST20-00010		Omitted
19177	4-27-2021	An ordinance vacating a 87 square-foot portion of a 10-foot public utility easement located within a portion of Lot 14, Block 485, Tierra del Este Unit Seventy-four, City of El Paso, El Paso County, Texas. Subject property: 2401 Tierra Murcia St. Applicant: Sanderson Village, LLC SUET21-00001		Omitted
19178	4-27-2021	An ordinance amending Title 2 (Administration and Personnel) of the El Paso City Code, to amend Chapter 2.94 (Regulation of Lobbying Activities) Section 2.94.130 (Disqualification from Contracting). The penalty being as provided for in Chapter 2.94.130 of the El Paso City Code	1	2.94.130
19179	5-11-2021	019179 An ordinance authorizing the city manager to sign a contract of sale and special warranty deed and any other documents necessary to convey to Yermoland Enterprises, Inc., a 0.6334 acres of land in a portion of Lots 3, 4 and 5, Block 5, Kessler Industrial District #1, City of El Paso, El Paso County, Texas		Omitted
19180	5-11-2021	An ordinance granting Special Permit No. PZST20-00011, to allow for infill development with reduction of parking, lot area, lot width, lot depth, front yard setback, and cumulative front & rear yard setback on the property described as being the west 47.47 feet of Lot 5, Indian Town Subdivision, 9124 San Fernando Court, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. The proposed special permit and detailed site development plan meet the intent of the future land use designation for the property and is in accordance with Plan El Paso, the city's comprehensive plan. Subject property: 9124 San Fernando Ct. Applicant: Rogelio Gaytan, PZST20-00011		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19181	5-11-2021	An ordinance changing the zoning of Lot 27, Block 1, Alto Mesa Unit 5, 6700 N. Mesa Street, City of El Paso, El Paso County, Texas from P-C (Planned Commercial) to C-2 (Commercial). The penalty being as provided in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the future land use designation for the property and is in accordance with Plan El Paso, the city's comprehensive plan. Subject property: 6700 N. Mesa Street. Applicants: Weststar Bank PZRZ21-00002		Omitted
19182	5-11-2021	An ordinance granting a non-exclusive franchise to "Elmshire, LLC" to place and maintain up to 150 waste containers on sidewalks and city property within the City of El Paso, subject to the terms and conditions described in the ordinance		Omitted
19183	5-11-2021	An ordinance granting a non-exclusive franchise to "A1 Outdoor Marketing" to place and maintain up to 150 waste containers on sidewalks and other city property within the City of El Paso, subject to the terms and conditions described in the ordinance		Omitted
19184	5-11-2021	An ordinance vacating a twenty-foot public utility easement located within a portion of Block 36, Clardy Fox Subdivision Unit Four, City of El Paso, El Paso County, Texas		Omitted
19185	5-11-2021	An ordinance authorizing the City Manager to sign a conservation easement, by and between the City of El Paso, El Paso Water Utilities, and the Frontera Land Alliance, to convey a conservation easement over the open space property commonly referred to as the "Lost Dog Property"		Omitted
19186	5-11-2021	An ordinance authorizing the city manager to sign a conservation easement, by and between the City of El Paso, El Paso Water Utilities, and the Frontera Land Alliance, to convey a conservation easement over the open space property commonly referred to as the "Knapp Property"		Omitted
19187	5-11-2021	An ordinance amending Title 12, Chapter 12.88 (Schedules), Section 12.88.180 (No stopping or standing-tow-away zone), paragraph A, to add portions of Rio Del Norte Drive; the penalty being provided in Section 12.84 of the El Paso City Code	1 Added	12.88.180 A.117, 118
19188	5-11-2021	An ordinance amending Title 12, Chapter 12.88 (Schedules), Section 12.88.150 (Schedule XIV - Speed limits), paragraph J (fifty-five miles per hour), to establish a maximum speed limit on Stan Roberts Sr Avenue; the penalty being provided in Chapter 12.84 of the El Paso City Code	1 Added	12.88.150 J.9
19189	5-11-2021	An ordinance amending Title 12, Chapter 12.88 (Schedules), Section 12.88.150 (Schedule XIV - Speed limits), to amend paragraph I (fifty miles per hour) by deleting subparagraph 6; to amend Paragraph H (forty-five miles per hour) by deleting subparagraphs 28 and 32; and to amend paragraph H (forty-five miles per hour) by amending subparagraph 27, to reduce the speed limit on portions of Zaragoza Road; the penalty being provided in Chapter 12.84 of the El Paso City Code	1 Rpld	12.88.150 I.6
			2 Rpld	12.88.150 H.28, 32

Ordinance Number	Approval Date	Description	Section	Section this Code
			3	12.88.150 H.27
19193	5-25-2021	An ordinance vacating city right-of-way over a 20-foot alley out of Block 266, Campbell Addition, City of El Paso, El Paso County, Texas. Subject property: North of Montana Ave. and East of Campbell St. Applicant: Housing Authority of the City of El Paso SURW21-00002		Omitted
19194	6- 8-2021	An ordinance authorizing the conveyance of real property owned by the City of El Paso to the State of Texas, acting by and through the Texas Transportation Commission, for the purchase price of $2,680,182. Such real property legally described as a 6.6348 acres (289,013 sq. ft.} parcel of land located in the T.&P.R.R. Co. Survey, Township No. 2, Block No. 80, Section No. 35, Abstract No. 2418, El Paso County, Texas, being a Portion of Lot 2, Block 2, Butterfield Trail Aviation Park, Unit Two, A subdivision recorded in Volume 78, Page 87 and 87A, of the plat records of El Paso County, Texas (P.R.E.P.C.TX), described in a deed from the United States of America to the City of El Paso, recorded in Volume 407, Page 601, and in Volume 1348, Page 146, of the deed records of El Paso County, Texas (D.R.E.P.C.TX)		Omitted
19195	6- 8-2021	An An ordinance authorizing the conveyance of real property owned by the City of El Paso to the State of Texas, acting by and through the Texas Transportation Commission, for the purchase price of $3,893,309. Such real property legally described as parcel of land containing 10.452 acres situated in Section No. 34, Abstract No. 3746, (C.M. Newman Survey), Section No. 35, Abstract No. 2418, Section No. 38, Abstract No. 5426, and Section No. 39, Abstract No. 2406 (C.M. Newman Survey), Block No. 80, Township No. 2, T. & P.R.R. Co. Surveys, El Paso County, Texas, same being out of and a part of Lot 2, Block 1, Butterfield Trail Aviation Park, Unit Two, an addition to the City of El Paso, according to the plat thereof recorded in Volume 78, Page 87, of the plat records of El Paso County, Texas (P.R.E.P.C.TX.), and being out of and a part of that certain tract described in deed from the United States of America to the City of El Paso, of record in Volume 407, Page 601, and in Volume 1348, Page 146, of the Deed Records of El Paso County, Texas (D.R.E.P.C.TX)		Omitted
19196	6- 8-2021	An ordinance changing the zoning of Tract 2-A, Block 52, Ysleta Grant, City of El Paso, El Paso County, Texas from R-F (Ranch-Farm) and R-F/H (Ranch-Farm/Historic) to R-3/C (Residential/Condition) and R-3/H/C (Residential/Historic/Condition) and imposing conditions. The penalty being as provided in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the future land use designation for the property and is in accordance with Plan El Paso, the city's comprehensive plan. Subject property: South of Americas Avenue and West of Socorro Road. Applicant: B&B Socorro, LLC PZRZ20-00019		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19197	6- 8-2021	An ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.030 (Schedule III - Parking prohibited at all times on certain streets), of the City Code, to add portions of Cross Street; the penalty being provided in Section 12.84 of the El Paso City Code	1 Added	12.88.030 386.
19198	6- 8-2021	An ordinance amending Title 12, Chapter 12.88 (Schedules), Section 12.88.150 (Schedule XIV - Speed limits), to amend paragraph F (thirty-five miles per hour), by amending subparagraph 32, to clarify the language in the City Municipal Code regarding the boundary limits of the existing 35 MPH speed limit on Montwood Dr.; the penalty being provided in Chapter 12.84 of the El Paso City Code	1	12.88.150 F.32
19199	6- 8-2021	An ordinance amending the El Paso City Code Title 2 (Administration and Personnel), Chapter 2.44 (City of El Paso Courts) Section 2.44.010 (created), subsection (B); and Section 2.44.030 (Judges), subsections (C) and (F), in order to allow for specified sub-courts under the purview of the presiding judge; and Title 2 (Administration and Personnel), Chapter 2.44 (City of El Paso Courts) Section 2.44.010 created, subsection (D); Section 2.44.030 (Judges), subsection (E)(1); Section 2.44.040 (Practice and Procedure), Subsection (A); Section 2.44.060 (Summons and Citations-Fee Schedule-Payments); and Section 2.44.080 (Special Expense Fee) to provide updates, corrections and clarification of municipal court procedures	1, 2	2.44.010 B., D.
			3—5	2.44.030 C., E.1, F.
			6	2.44.040 A.
			7	2.44.060
			8	2.44.080
19200	6-22-2021	An ordinance amending Title 3 (Revenue and Finance) of the El Paso Municipal Code, Chapter 3.04 (Property Taxes) by amending section 3.04.040 (Exemption - Residence Homestead) to increase the ad valorem property tax exemption for individuals over 65 and disabled citizens who qualify under the current Code	1	3.04.040 A.
19204	7- 7-2021	An ordinance changing the zoning of Tract 1J3, 1J1B, and 1K2, Block 10, and a portion of Tract 1H, Block 10, Upper Valley Grant Surveys, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) and P-R I/C (Planned Residential I/Conditions) to G-MU (General-Mixed Use) and G-MU/C (General-Mixed Use/Conditions) and approving a master zoning plan. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the future land use designation for the property and is in accordance with Plan El Paso, the city's comprehensive plan. Subject property: South of Artcraft Road and East of Westside Drive. Applicant: Wright and Dalbin Architects c/o Geoffrey Wright, PZRZ21-00004		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19208	7-20-2021	An Ordinance granting a Special Privilege License to El Paso Independent School District for the maintenance, use and repair of an existing underground tunnel encroaching within a portion of Arizona Avenue between Kansas Street and Stanton Street; setting the license for a term of fifteen years (15) with one (1) renewable fifteen (15) year term. Subject Property: 1014 N. Stanton Applicant: El Paso Independent School District NESV2018-00014		Omitted
19209	7-20-2021	An Ordinance authorizing the dedication for the use of the public as right-of-way 10.1947 acres of land legally described as a 10.1947 acre parcel situated within the corporate limits of the City of El Paso, El Paso County, Texas as a portion of sections 22 and 23, Block 80, Township 2, Texas & Pacific Railway Company Surveys. Subject Property: South of Liberty Expressway and West of Purple Heart Highway Applicant: City of El Paso (El Paso International Airport) SURW21-00005		Omitted
19210	8- 3-2021	An Ordinance amending the Ordinance authorizing the issuance of City of El Paso, Texas, Water and Sewer Commercial Paper Notes, Series A; approving and authorizing the execution of an amendment to an existing Credit Agreement and other related agreements with respect to such notes; and resolving other matters incident and related thereto		Omitted
19211	8- 3-2021	An Ordinance approving amendment number twenty to the Project Plan and Reinvestment Zone financing plan for Tax Increment Reinvestment Zone (TIRZ) Number Five, City of El Paso, Texas, to allocate up to One Hundred Thousand dollars of the Tax Increment Reinvestment Zone annual revenue to the Downtown Management District Commercial Façade Improvement Program; adopting said amendments as required by section 311.011(e) Texas Tax Code		Omitted
19212	8- 3-2021	An Ordinance of the City Council of the City of El Paso, Texas, designating a noncontiguous geographic area within the City as a reinvestment zone pursuant to Chapter 311 of the Texas Tax Code, to be known as Reinvestment Zone Number Fourteen, City of El Paso; describing the boundaries of the Zone; creating a board of directors for the Zone; establishing a tax increment fund for the Zone; containing findings related to the creation of the Zone; providing a date for the termination of the Zone; providing that the Zone take effect immediately upon passage of the ordinance; providing a severability clause; and providing an effective date		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19213	8- 3-2021	An Ordinance changing the zoning of the property described as a portion of Tract 10-2, A.F. Miller Survey No. 211, 125 Belvidere Street, City of El Paso, El Paso County, Texas from R-3 (Residential) and A-O (Apartment/Office) to S-D (Special Development), pursuant to Section 20.04.360, and approving a detailed site development plan pursuant to Section 20.04.150 and 20.10.360 of the El Paso City Code to allow for front and rear yard setback reductions as permitted in the S-D (Special Development) zone district. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 125 Belvidere Street Applicant: City of El Paso PZRZ21-00008		Omitted
19214	8- 3-2021	An Ordinance changing the zoning of Lot 1, Block 35, Colonia Verde #6, 10005 Dyer Street, City of El Paso, El Paso County, Texas, From C-2/C/SC (Commercial/condition/special contract) to C-1/C/SC (Commercial/condition/special contract). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 10005 Dyer Street Applicant: Beckross Properties, LLC PZRZ20-00027		Omitted
19218	8-17-2021	An Ordinance changing the zoning of a Tract of land situated in the Ysleta Town Tract Survey, Abstract No. 214, City of El Paso, El Paso, County, Texas; said Tract being part of Lots 1 & 2, Block 2, A & M Addition, an addition to the City of El Paso according to the plat recorded in Volume 45, Page 10 of the Official Public Records of El Paso County, Texas; said Tract being part of that Tract of land described in Assumption Special Warranty Deed to Ben L. Ivey, LTD. recorded in Instrument No. 20020012761 of said Official Public Records; said Tract also being all of that Tract of land described in Assumption Special Warranty Deed to Ben L. Ivey, LTD. recorded in Instrument No. 20020012760 of said Official Public Records; said Tract also being part of Parcel 1 and all of Parcel 2 described in Deed of Trust recorded in Instrument No. 20190062708 of said Official Public Records, City of El Paso, El Paso County, Texas from A-2/sc (Apartment/special contract) to C-4/sc (Commercial/special contract) and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 9641 North Loop Drive and 215 Sofia Place Applicant: Kimely-Horn and Associates, Inc. PZRZ21-00005		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19219	8-17-2021	An Ordinance changing the zoning of Tract 19B, Block 2, Ysleta Grant El Paso, City of El Paso, El Paso County, Texas (Ysleta Grant Map, Block 2, December 1929) from R-F (Ranch-Farm) to C-4/c (Commercial/condition) and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 551 Inglewood Drive Applicant: Inglewood Properties, LLC PZRZ21-00006		Omitted
19220	8-17-2021	An Ordinance amending the Future Land Use Map (FLUM) contained in "Plan El Paso" for a Tract of land situated in the Ysleta Town Tract Survey, Abstract No. 214, City of El Paso, El Paso, County, Texas; said Tract being part of Lots 1 & 2, Block 2, A & M Addition, an addition to the City of El Paso according to the plat recorded in Volume 45, Page 10 of the Official Public Records of El Paso County, Texas; said Tract being part of that Tract of land described in Assumption Special Warranty Deed to Ben L. Ivey, LTD. recorded in Instrument No. 20020012761 of said Official Public Records; said Tract also being all of that Tract of land described in Assumption Special Warranty Deed to Ben L. Ivey, LTD. recorded in Instrument No. 20020012760 of said Official Public Records; said Tract also being part of Parcel 1 and all of Parcel 2 described in Deed Of Trust recorded in Instrument No. 20190062708 of said Official Public Records, City of El Paso, El Paso County, Texas, from O-3, Agriculture to G-7, Industrial. Subject Property: 9641 North Loop Dr. and 215 Sofia Pl. Applicant: Kimley-Horn and Associates, Inc. PLCP21-00001		Omitted
19221	8-17-2021	An Ordinance amending the Future Land Use Map (FLUM) contained in "Plan El Paso" for the properties legally described as all of Tract 19B, Block 2, Ysleta Grant, City of El Paso, El Paso County, Texas, from O-3, Agriculture to G-7, Industrial. Subject Property: 551 Inglewood Dr. Applicant: Inglewood Properties, LLC PLCP21-00002		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19222	8-24-2021	An Ordinance levying FY2022 taxes. Be it ordained by the City Council of the City of El Paso: Section 1: That ad valorem taxes for the tax year ending December 31, 2021 to fund the City's budgetary requirements for the fiscal year ending August 31, 2022, be and are hereby levied on all property, real and personal, subject to taxation by the City, at the rate of $ 0.907301 per $100 of taxable value of said property. The tax rate consists of two components, each which are separately approved by Council: A. For General Purposes: 0.621636 per $100 of taxable value, the rate that, if applied to the total taxable value, will impose the amount of taxes needed to fund maintenance and operation expenditures of the City for the coming year. B. For Special Purposes: $0.285665 per $100 of taxable value, the rate that, if applied to the total taxable value, will impose the total amount published under Section 26.04(e)(3)(C) of the Texas Property Tax Code (Tax Code). This tax rate will raise more taxes for maintenance and operations than last year's tax rate. The tax rate will effectively be raised by 3.13 percent and will raise taxes for maintenance and operations on a $100,000 home by approximately $-2.21. Section 2: Occupational Tax: There is hereby levied on every person, firm, association or corporation pursuing within the limits of the City of El Paso any occupation taxes by the State of Texas as authorized by City Council an annual tax equal to one-half of the occupation tax levied by the State of Texas		Omitted
19223	8-24-2021	An Ordinance authorizing the issuance of City of El Paso, Texas, General Obligation Bonds, Series 2021B; levying a continuing direct annual ad valorem tax for the payment of such Bonds; and resolving other matters which are necessary to effectuate such issuance; including the delegation of matters relating to the sale and issuance of such Bonds to an authorized City official within certain specified parameters		Omitted
19224	8-24-2021	An Ordinance authorizing the issuance of City of El Paso, Texas Combination Tax and Revenue Certificates of Obligation, Series 2021C; levying a continuing direct annual ad valorem tax for the payment of such certificates; and resolving other matters which are necessary to effectuate such issuance, including the delegation of matters relating to the sale and issuance of such certificates to an authorized City official within certain specified parameters		Omitted
19225	8-31-2021	An Ordinance Amending Title 10.12.020 - Firearms - Carrying Prohibited. Texas House Bill 1927 authorizes most Texans over the age of 21 to carry firearm in concealed manner or openly in a holster and also modifies the ability of municipalities to restrict firearms in certain areas. City Council wishes to modify Chapter 10.12 Offenses against Public Peace, Section 10.12.020 - Firearms-Carrying prohibited to align with Texas House Bill 1927	1	10.12.020
19226	8-31-2021	An Ordinance Amending Title 13 (Streets, Sidewalks & Public Places), Chapter 13.24 (City Parks and Recreation Areas), 13.24.070 (Dangerous Amusements), to allow a person to carry a handgun who is not otherwise prohibited by law from carrying a handgun	1	13.24.070

Ordinance Number	Approval Date	Description	Section	Section this Code
19227	8-31-2021	An Ordinance changing the zoning of a 0.376-acre portion of Tract 1B, Nellie D. Mundy Survey 242 and Tract 2E4, Nellie D. Mundy Survey 243, City of El Paso, El Paso County, Texas from C-4/c (Commercial/conditions) to R-3A/c (Residential/conditions). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: East of Resler Dr. and South of Woodrow Bean Transmountain Rd. Applicant: CSA Design Group, Inc. c/o Adrian Holguin-Ontiveros, PZRZ21-00015		Omitted
19230	9-14-2021	An Ordinance changing the zoning for the property described as Tract 6A and Tract 6E, Block 16, Ysleta Grant, City of El Paso, El Paso County, Texas from R-F (Ranch-Farm) to R-3 (Residential). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: North of Yarbrough Dr. and East of Hampton Rd. Applicant: Daniel Barragan-Arzola and Ruby Barragan; PZRZ21-00012		Omitted
19231	9-14-2021	An Ordinance approving a Special Permit for a 29% parking reduction for the property described as Parcel 1: Lot 1, Block 1, J.C. Machuca Addition, Parcel 2: All of Tract 1, a portion of Tract 2, and a portion of an abandoned El Paso Natural Gas Co. Right-of-Way, Sunland Commercial District, an addition to the City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed special permit and detailed site plan meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 1019 and 1039 JC Machuca Rd. Applicant: Housing Authority of the City of El Paso, PZST21-00009		Omitted
19232	9-14-2021	An Ordinance granting Special Permit No. PZST21-00005 to allow for a professional office on the property described as Lot 7, Block 111C, Vista Del Sol Unit 20 Replat "B", City of El Paso, El Paso County, Texas, pursuant to Section 20.04.320 of the El Paso City Code. The penalty as provided in Chapter 20.24 of the El Paso City Code. The proposed special permit meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 11061 Vista Del Sol Drive Applicant: Samuel Zermeno PZST21-00005		Omitted
19233	9-14-2021	An Ordinance annexing the following real property described as a Portion of Berryville Street and Triumph Street, Horizon City Estates Unit 54, El Paso County, Texas. Subject Property: Berryville Street South of Montwood Dr. Applicant: El Paso County SUAX20-00002		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19234	9-14-2021	An Ordinance vacating the 20-foot alley within Block 144, Campbell Addition, an addition to the City of El Paso, El Paso County, Texas. Subject Property: West of St. Vrain St. and North of Paisano Dr. Applicant: Sisu Environ Development, LLC (SURW20-00005)		Omitted
19235	9-28-2021	An Ordinance changing the zoning of a portion of Lots 1 and 2, Block 113, Vista Del Sol Unit Sixteen Replat "S", 11101 Armour Street, City of El Paso, El Paso County, Texas from P-I (Planned Industrial) to C-4 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 11101 Armour Dr. Applicant: Mast Partners LP, PZRZ21-00011		Omitted
19236	9-28-2021	An Ordinance changing the zoning for the property described as a Portion of Tract 4D, of First Supplemental Map of Parkland Addition, City of El Paso, El Paso County, Texas R-4 (Residential) to R-5 (Residential). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 10032 Cross St. Applicant: Premium Intercapital Group, Inc., PZRZ21-00013		Omitted
19237	9-28-2021	An Ordinance annexing the following real property described as a Portion of Section 17, Block 79, Township 3, Texas And Pacific Railway Company Survey, El Paso County, Texas. Subject Property: East of Joe Battle Blvd. and South of Bob Hope Dr. Applicant: Socorro Independent School District SUAX20-00001		Omitted
19238	9-28-2021	An Ordinance renewing and extending the Special Privilege License granted to the United States of America, acting by and through the Department of the Navy, Naval Facilities Engineering Command Southeast, as owner of the Naval Operations Support Center (NOSC) El Paso, to permit the continued use, maintenance and repair of a surface encroachment of curbing, guttering and security fence over a portion of city right-of-way along Truman Avenue and adjacent to the NOSC El Paso located at 4810 Pollard Street, El Paso, Texas; setting the license term for a term of one (1) year with seven (7) additional one (1) year renewal options. Subject Property: 4810 Pollard Applicant: United States of America, Department of the Navy, NESV2021-00004		Omitted
19239	10-11-2021	An emergency ordinance re-enacting Emergency Ordinance No. 019035; extending a disaster declaration due to a public health emergency		Omitted
19240	10-11-2021	An emergency ordinance re-enacting Emergency Ordinance No. 019036, as re-enacted, restated and amended by emergency Ordinance No. 019151; and further re-enacted and amended by Emergency Ordinance Nos. 019156, 019169, 019191 penalty as provided in Section 8		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19241	10-11-2021	An emergency ordinance instituting emergency measures to allow temporary uses on the public right-of-way and private property by suspending various city ordinances; penalty as provided in Section 6		Omitted
19242	10-12-2021	An ordinance to amend Title 5 (Business License and Permit Regulations) Chapter 5.09 (Sexually Oriented Businesses) Sections 5.09.020 (Definitions), 5.09.050 (A)(1) (Issuance of a License), 5.09.050(B)(1) (Employee License), and 5.09.170(D) (Prohibited Conduct); The penalty being as provided in Section 5.09.150 (Penalties and Enforcement) of the El Paso City Code	1	5.09.020
			2	5.09.050(A)(1)
			3	5.09.050(B)(1)
			4	5.09.170(D)
19243	10-12-2021	An ordinance amending Title 19 (Subdivision and Development Plats) Sections: 19.01.010 (Authority, Purpose and Applicability), 19.01.020 (Types of plats required), 19.01.030 (Exemptions), 19.01.050 (Application and Procedures), 19.02.020 (Application and Procedures), 19.03.020 (Application and Procedures), 19.04.020 (Application and Procedures), 19.04.070 (Plat Recordation), 19.05.020 (Application and Procedures), 19.06.020 (Application and Procedures), 19.07.040 (Amending Plats), 19.10.020 (In General), 19.31.030 (City Development Director), 19.37.060 (Application Contents), and 19.37.070 (Application Fees) of the El Paso City Code to update references in the Title, correct typographical errors, provide for the submittal of electronic applications, clarify presentation of final plats to City Plan Commission, provide for signature of Planning and Inspections Director on final plats, update figures, and remove reduction of certain fees for properties located within the boundaries of Tax Increment Zones or Empowerment Zones. The penalty is as provided under Title 19, Chapter 19.42 of the El Paso City Code. (Citywide)	1	19.01.010 D.
			2	19.01.020 A.
			3	19.01.030
			4	19.01.050
			5, 6	19.02.020 B., E.
			7	19.03.020 C.
			8, 9	19.04.020 E., F.
			10	19.04.070 A.1.
			11	19.05.020 B.
			12	19.06.020 B.
			13	19.07.040 D.
			14, 15, 16	19.10.020 A.1.a, c, e
			17	19.31.030
			18	19.37.060
			19	19.37.070

Ordinance Number	Approval Date	Description	Section	Section this Code
19244	10-12-2021	An ordinance Amending various sections of Title 20 (Zoning), Chapters 20.04 (Administrative Provisions), 20.08 (Permissible Uses), and 20.10 (Supplemental Use Regulations) to update Code reference language, delete language regarding fee reductions for detailed site development plans pertaining to properties located within the boundaries of the Tax Increment Financing Zone No. 5 and any neighborhood empowerment zone, delete mixed use development plan requirement, delete language regarding fee reductions for special permits pertaining to properties located within the boundaries of the Tax Increment Financing Zone No. 5 and any neighborhood empowerment zone, and delete language regarding fee reductions for rezoning applications pertaining to properties located within the boundaries of the Tax Increment Financing Zone No. 5 and any neighborhood empowerment zone. The penalty being as provided in Section 20.24 of the El Paso City Code. The proposed amendments meet the intent of and are in accordance with Plan El Paso, the City's Comprehensive Plan	1	20.04.010
			2	20.04.160
			3	20.04.200
			4	20.04.260
			5	20.04.320
			6	20.04.370
			7	20.04.400
			8	20.04.430
			9	20.04.900
			10	20.08.010
			11	20.08.020
			12	20.08.060
			13	20.10.145
			14	20.10.360
			15	20.10.370
19245	10-12-2021	An ordinance amending Title 21 (SmartCode), Chapter 21.50 (Building Scale Plans), Section 21.50.060 (Building Disposition), to calibrate the SmartCode to the local character of the place and local conditions. The penalty being as provided in Section 21.60 of the El Paso City Code	1	21.50.060
19246	10-12-2021	An ordinance changing the zoning of Lot 21, Block 2, 5984 Sixta Drive, Harvest Moons Farms, City of El Paso, El Paso County, Texas from RMH (Residential Mobile Home) to R-3 (Residential). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 5984 Sixta Drive. Applicant: Vista del Sol Architectural Design, PZRZ21-00010		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19247	10-12-2021	An ordinance changing the zoning of the following real property known as: Parcel 1: A 770.7639 acre parcel known as, All of S. J. Larkin Survey No. 267, a portion of Nellie D. Mundy Survey No. 246, a portion of Tract 1, S. J. Larkin Survey No. 268 and a portion of Tract 1A, S. J. Larkin Survey No. 269 located within the corporate limits of the City of El Paso, El Paso County, Texas from SCZ (Smart Code) to NOS (Natural Open Space); and, Parcel 2: A 230.9228 acre parcel known as, A portion of Tract 1, Nellie D. Mundy Survey No. 246, a portion of Section 9, Block 82, Township 1, Texas and Pacific Railway Company Surveys and a portion of Tract 1, S. J. Larkin Survey No. 269, located within the corporate limits of the City of El Paso, El Paso County, Texas, from SCZ (Smart Code) to NOS (Natural Open Space). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: Northwest El Paso, abutting the Franklin Mountain State Park. Applicant: City of El Paso - Capital Improvement Department c/o Santiago Vallejo-Gutierrez; PZRZ21-00021		Omitted
19248	10-26-2021	An ordinance authorizing the City Manager to sign a Purchase and Sale Agreement, Special Warranty Deed and any other documents necessary to convey to VJ Capital Properties, Ltd., approximately 3.15 acres of land being described as a portion of Tracts 23-G-1 and 23-G-2, Block 54, Ysleta Grant, El Paso County, Texas		Omitted
19249	10-26-2021	An ordinance approving a project and financing plan for Tax Increment Reinvestment Zone Number Fourteen, City of El Paso, Texas; making various findings related to such plan; providing for severability; and providing an effective date		Omitted
19250	10-26-2021	An ordinance granting a non-exclusive franchise to AMX Construction & Waste, to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the franchise terms and conditions; the penalty as provided in section 9.04.630 of the El Paso City Code		Omitted
19251	10-26-2021	An ordinance renewing a Special Privilege License to the El Paso Electric Company, Owner and El Paso Parking, Inc., Lessee, to permit off-street parking within a portion of Rim Road right-of-way, by extending the term for another five years. Subject Property: South of Rim Rd. and West of El Paso St. Applicant: El Paso Parking Inc. NESV2020-00005		Omitted
19252	10-26-2021	An ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.030 (Schedule III - Parking Prohibited at all times on certain streets) of the City Code, to add portions of South El Paso Street; the penalty being provided in Chapter 12.84 of the El Paso City Code	1	12.88.030 III.39
19253	11- 8-2021	An emergency ordinance re-enacting Emergency Ordinance No. 019035 extending a disaster declaration due to a public health emergency		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19254	11- 8-2021	An emergency ordinance re-enacting Emergency Ordinance No. 019036 instituting emergency measures, as re-enacted, restated and amended by Emergency Ordinance No. 019151; and further re-enacted and amended by Emergency Ordinance Nos. 019156, 019169, 019191 penalty as provided in Section 8		Omitted
19255	11- 8-2021	An emergency ordinance re-enacting Emergency Ordinance No. 019241; allowing temporary uses on the public right-of-way and private property by suspending various city ordinances; penalty as provided in Section 6		Omitted
19256	11- 9-2021	An ordinance amending Title 10 (Public Peace, Morals and Welfare), Chapter 10.12 (Offenses against Public Peace), Section 10.12.050 (Alcohol Prohibited in Public Places), Subsection A to define "Homeless Shelter," "Possesses," and "Possession," and Subsection B to add Homeless Shelter to the area where offense can occur; the penalty being provided in Subsection 10.12.050 E of the El Paso City Code	1, 2	10.12.050
19257	11- 9-2021	An ordinance changing the zoning for a portion of Tract 6, Fruitvale Addition, 8458 Roseway Drive, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) to R-4 (Residential). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 8458 Roseway Drive. Applicant: Elder Ramirez, PZRZ21-00023		Omitted
19258	11- 9-2021	An ordinance approving a special permit for a parking lot for the property described as Lot 7 and 8 and South 2 Feet of Lot 9, Block 82, Campbell Addition, City of El Paso, El Paso County, Texas, The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed special permit meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 707 S. Ochoa St. Applicant: Jaime Montoya, PZST21-00010		Omitted
19259	11- 9-2021	An ordinance changing the zoning for the property described as being a portion of Tracts 3 and 3A, Section 15, Block 80, Township 1, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas from R-F (Ranch-Farm) to R-5 (Residential). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: Dyer Street and O'Connor Drive. Applicant: Salvare NE El Paso, LLC, PZRZ21-00019		Omitted
19260	11-23-2021	An ordinance amending Title 12 (Vehicles and traffic), Chapter 12.08 (Administration and Enforcement), Section 12.08.220 (Impounding Vehicles) of the City Code, in its entirety, to allow an employee designated by the City to request the removal and storage of illegally parked and abandoned vehicles	1	12.08.220

Ordinance Number	Approval Date	Description	Section	Section this Code
19261	11-23-2021	An ordinance changing the zoning of all of Lots 1 through 20, Block 266, Campbell Addition, and the vacated 20.00' alley, City of El Paso, El Paso County, Texas from C-1/c/sp (Commercial/conditions/special permit), A-2 (Apartments), and C-4/sp (Commercial/special permit) to G-MU/c/sp (General Mixed Use/conditions/special permit) and approving a Master Zoning Plan. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 405 Montana Ave. Applicant: SLI Engineering c/o Georges Halloul, PZRZ21-00001		Omitted
19262	11-23-2021	An ordinance granting Special Permit No. PZST21-00001, to allow for a 50% reduction in parking on the property described as all of Lots 1 through 20, Block 266, Campbell Addition, and the Vacated 20.00' Alley, City of El Paso, El Paso County, Texas, pursuant to Section 20.14.070.B of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. The proposed special permit and detailed site development plan meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 405 Montana Ave. Applicant: SLI Engineering, c/o Georges Halloul, PZST21-00001		Omitted
19263	12- 6-2021	An emergency ordinance re-enacting Emergency Ordinance No. 019035; extending a disaster declaration due to a public health emergency		Omitted
19264	12- 6-2021	An emergency ordinance re-enacting Emergency Ordinance No. 019036 instituting emergency measures, as re-enacted, restated and amended by Emergency Ordinance No. 019151; and further re-enacted and amended by Emergency Ordinance Nos. 019156, 019169, 019191; penalty as provided in Section 8		Omitted
19265	12- 6-2021	An emergency ordinance re-enacting Emergency Ordinance No. 019241; allowing temporary uses on the public right-of-way and private property by suspending various city ordinances; penalty as provided in Section 6		Omitted
19266	12- 7-2021	An ordinance authorizing the City Manager to sign an Offer To Sell, a Deed and any other documents necessary to convey 59.022 acres of land more or less, being described as Tract 1A, Section 16, Block 80, Township 1, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas to the United States of America, Department of the Army		Omitted
19267	12- 7-2021	An ordinance amending Title 5 (Business Licenses and Permit Regulations) to create Chapter 5.18 (Convenience Store Regulation) and Subsections thereunder in the El Paso City Code relating to the registration of and safety and prevention requirements for convenience stores within City of El Paso; the penalty as provided in Section 5.18.080 of the El Paso City Code	1, 2 Added	Ch. 5.18, 5.18.010—5.18.110

Ordinance Number	Approval Date	Description	Section	Section this Code
19268	12- 7-2021	An ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.04 (General provisions and definitions), Section 12.04.040 (Bicycle) of the City Code, to amend, in its entirety, the definition of "Bicycle"	1	12.04.040
19269	12- 7-2021	An ordinance granting Special Permit No. PZST21-00012, to allow for a television and radio broadcasting antennae on the property described as a portion of Lot 1, Block 2, Pellicano Commercial Unit Three, 12285 Pellicano Drive, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.700 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. The proposed special permit meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 12285 Pellicano Drive. Applicant: Montoya Oak Business Park, LP PZST21-00012		Omitted
19270	12- 7-2021	An ordinance changing the zoning of Tract 8C, Section 29, Block 80, TSP 1, Texas And Pacific RR Company Surveys, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) to C-4 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: Generally located East of Dyer Street and North of Sean Haggerty Drive/Angora Loop Avenue. Applicant: Sitework Engineering c/o Jorge Garcia, PZRZ21-00022		Omitted
19271	12- 7-2021	An ordinance vacating a portion of City Right-of-Way over a portion of San Jose Street, Highland Park Addition Amended Map, City of El Paso, El Paso County, Texas. Subject Property: East of Cotton St. and North of Murchison Dr. Applicant: Scenic View Townhomes LLC, Patricia Mendoza and City of El Paso, SURW20-00004		Omitted
19272	12- 7-2021	An ordinance renewing and extending the Special Privilege License granted to Western Refining Company LLC (F/K/A Western Refining Company L.P.) by Ordinance No. 16272 to encroach onto portions of City Rights-of-Way within Trowbridge Drive, Marathon Street and North Loop Drive; and an Ordinance granting a Special Privilege to Western Refining Company LLC to permit the construction and installation, maintenance and operation of various multi-product pipelines and utility lines along portions of City Right-of-Way at Trowbridge Drive, Marathon Street and to allow the construction and encroachment of an overhead bridge across a portion of public right-of-way along Trowbridge Drive for a term of fifteen years with one (1) renewable fifteen year term. Subject Property: 6500 Trowbridge. Applicant: Western Refining Company LLC, NESV2020-00003		Omitted
19273	12- 7-2021	An ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules) Section 12.88.030 (Schedule III - Parking prohibited at all times on certain streets) of the City Code to prohibit parking on portions of Piedras Street; the penalty being provided in Chapter 12.84 of the City Code	1	12.88.030, III.85

Ordinance Number	Approval Date	Description	Section	Section this Code
19274	12-14-2021	An ordinance changing the zoning of the following real property known as: Parcel 1: Tract 1, Section 4, Block 80, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas, from R-F (Ranch and Farm) to M-2 (Heavy Manufacturing); and Parcel 2: Tract 3, Section 3, Block 80, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas, from R-F (Ranch and Farm) to M-2 (Heavy Manufacturing), and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 7000 Stan Roberts. Applicant: City of El Paso, PZRZ21-00020		Omitted
19275	12-14-2021	An ordinance changing the zoning for the property described as Parcel 1: a portion of Tracts 5 and 6, N/K/A Tracts 5A5 and 6, Section 15, Block 80, Township 1, Texas and Pacific Railroad Company Surveys, 12100 Dyer Street, City of El Paso, El Paso County, Texas from R-F (Ranch-Farm) to R-5 (Residential) and Parcel 2: a portion of Section 15, N/K/A Tract 7A, Section 15, Block 80, Township 1, Texas and Pacific Railroad Company Surveys, 12100 Dyer Street, City of El Paso, El Paso County, Texas from M-1 (Light Manufacturing) to C-4 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 12100 Dyer St. Applicant: Joseph J. and George J. Ayoub, PZRZ21-00016		Omitted
19276	12-14-2021	An ordinance amending Title 15 (Public Services) of the El Paso City Code to add a new Chapter 15.24 (Acquisition, Use, and Disposition of City property) to authorize the establishment of policies and fees for the use, purchase, and disposition of City property	1 Added	Ch. 15.24, 15.24.010—15.24.030
19280	1- 4-2022	An ordinance approving amendment number twenty-one to the project plan and reinvestment zone financing plan for tax increment reinvestment zone (TIRZ) number five, City of El Paso, Texas, to provide funding to the 309 Mills, LLC improvement project of the property located at 309 Mills Avenue, 79901; subject to the execution of a separate agreement by and between the City of El Paso and the project developer(s); adopting said amendments as required by section 311.011(E) Texas Tax Code		Omitted
19281	1-19-2022	An ordinance amending Title 15 (Public Services), Chapter 15.08 (Street Rentals), Section 15.08.150 (Shared mobility devices), to update permit term and renewal requirements	1	15.08.150 C.

Ordinance Number	Approval Date	Description	Section	Section this Code
19282	1-19-2022	An ordinance amending Title 7 (Animals), Chapter 7.04 (Definitions and Administration), Section 7.04.010 (Definitions) to add inclement weather to the definitions; Chapter 7.08 (Animals Generally), Section 7.08.050 (Standards for animal care) to add inclement weather conditions to unlawful restraint of a dog; Chapter 7.12 (Dogs and Cats), Section 7.12.020 (Registration, vaccination, and microchips required) to allow veterinarians to exchange or return up to 100, unused, expired from the previous year tags for current year tags; Chapter 7.15 (Grooming Services), Section 7.15.030 (Groomer license application) to clarify the contents of the groomer's application; Chapter 7.15, Section 7.15.070 (Denial) to amend conviction timeframe ineligibility; Chapter 7.15 (Grooming Services), Section 7.15.080 (Groomer license suspension or revocation) to clarify the type of investigation and corrective action timeframe; Chapter 7.15, Section 7.15.090 (Shop registration required) to clarify the type of background check required and allowing documents relevant to application, background check, and supporting documents be available for inspection; Chapter 7.15 (Grooming Services), Section 7.15.100 (Shop registration application) to clarify the issuance of shop registration requirements; Chapter 7.15, Section 7.15.140 (Denial) to clarify denial reasons for permit application; Chapter 7.28 (Animal Shelter Advisory Committee), Section 7.28.050 (Quorum and procedures) to amend department; the penalty as provided in Section 7.04.080 of the El Paso City Code	1 Added	7.04.010 X.
			Rnbd	7.04.010 X.—VV.
			as	7.04.010 Y.—WW.
			2	7.08.050 H.1
			3	7.12.020 B.
			4	7.15.030 B.
			5	7.15.070 A.
			6	7.15.080
			7	7.15.090
			8	7.15.100 A.5
			9	7.15.140 A.2
			10	7.28.050 B.
19283	1-31-2022	Discussion and action on an emergency ordinance re-enacting emergency Ordinance No. 019035 extending a disaster declaration due to a public health emergency		Omitted
19284	1-31-2022	Discussion and action on an emergency ordinance re-enacting and amending Emergency Ordinance No. 019036 instituting emergency measures, to include that boards and commissions may meet by videoconference if not required to meet in person under state law, as re-enacted, restated and amended by Emergency Ordinance No. 019151; and further re-enacted and amended by Emergency Ordinance Nos. 019156, 019169, 019191 and 019278; penalty as provided in Section 8		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19285	1-31-2022	Discussion and action on an emergency ordinance re-enacting Emergency Ordinance No. 019241; allowing temporary uses on the public right-of-way and private property by suspending various city ordinances; penalty as provided in Section 6		Omitted
19286	2- 1-2022	An ordinance changing the zoning of the following real property known as: Parcel 1: a portion of Tracts 4B, 4B1, 5A, 5A1, and 6, Laura E. Mundy Survey 237; Tracts 9B and 9B1, Laura E. Mundy Survey No. 238; and portion of Enchanted Hills Unit Five, City of El Paso, El Paso County, Texas, from R-MU (Residential Mixed Use) to R-5 (Residential) and, Parcel 2: a portion of Tracts 9B, 9B1, and 9B2, Laura E. Mundy Survey No. 238; and portion of Lots 2 thru 5, 9 thru 12, and 21 thru 24, Block 23, Enchanted Hills 5, City of El Paso, El Paso County, Texas, from R-3 (Residential), R-5/sp (Residential/special permit), and R-MU (Residential Mixed Use) to C-2 (Commercial); and, Parcel 3: a portion of Tract 9B2, Laura E. Mundy Survey No. 238, City of El Paso, El Paso County, Texas, from R-3 (Residential) to C-3 (Commercial), and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code		Omitted
19287	2- 1-2022	An ordinance granting a renewal of non-exclusive franchise to A-1 Disposal, to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the franchise terms and conditions; the penalty as provided in Section 9.04.630 of the El Paso City Code		Omitted
19288	2- 1-2022	An ordinance granting a renewal of non-exclusive franchise to Alareal Corporation, to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the franchise terms and conditions; the penalty as provided in Section 9.04.630 of the El Paso City Code		Omitted
19289	2- 1-2022	An ordinance granting a renewal of non-exclusive franchise to Anvaco Corporation, to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the franchise terms and conditions; the penalty as provided in Section 9.04.630 of the El Paso City Code		Omitted
19290	2- 1-2022	An ordinance granting a renewal of non-exclusive franchise to Demcon Disposal Management, LLC, to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the franchise terms and conditions; the penalty as provided in Section 9.04.630 of the El Paso City Code		Omitted
19291	2- 1-2022	An ordinance granting a renewal of non-exclusive franchise to El Paso Disposal, LP, to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the franchise terms and conditions; the penalty as provided in Section 9.04.630 of the El Paso City Code		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19292	2- 1-2022	An ordinance granting a renewal of non-exclusive franchise to El Paso Sanitation Systems, Inc, to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the franchise terms and conditions; the penalty as provided in Section 9.04.630 of the El Paso City Code		Omitted
19293	2- 1-2022	An ordinance granting a renewal of non-exclusive franchise to GCC of America, Inc., to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the franchise terms and conditions; the penalty as provided in Section 9.04.630 of the El Paso City Code		Omitted
19294	2- 1-2022	An ordinance granting a renewal of non-exclusive franchise to Heist Disposal, Inc., to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the franchise terms and conditions; the penalty as provided in Section 9.04.630 of the El Paso City Code		Omitted
19295	2- 1-2022	An ordinance granting a renewal of non-exclusive franchise to JRG Disposal Service, to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the franchise terms and conditions; the penalty as provided in Section 9.04.630 of the El Paso City Code		Omitted
19296	2- 1-2022	An ordinance granting a renewal of non-exclusive franchise to Loretto Investment Corporation, to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the franchise terms and conditions; the penalty as provided in Section 9.04.630 of the El Paso City Code		Omitted
19297	2- 1-2022	An ordinance granting a renewal of non-exclusive franchise to Moore Service, Inc., to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the franchise terms and conditions; the penalty as provided in Section 9.04.630 of the El Paso City Code		Omitted
19298	2- 1-2022	An ordinance granting a renewal of non-exclusive franchise to Sandoval Capital Inc. DBA Bronco Disposal, to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the franchise terms and conditions; the penalty as provided in Section 9.04.630 of the El Paso City Code		Omitted
19299	2- 1-2022	An ordinance granting a renewal of non-exclusive franchise to Southwest Disposal Inc, to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the franchise terms and conditions; the penalty as provided in Section 9.04.630 of the El Paso City Code		Omitted
19300	2-15-2022	Amending Title 20 (Zoning) Section 20.18.140 (Prohibited signs) and adding Section 20.18.320 (Mobile billboards) to allow mobile billboards. The penalty being as provided in Section 20.24 of the El Paso City Code	1 Rpld	20.18.140 I.
			2 Added	20.18.320

Ordinance Number	Approval Date	Description	Section	Section this Code
19301	2-15-2022	Amending Title 15, (Public Services), Chapter 15.08 (Street Rentals), establishing Section 15.08.160 (Mobile billboards) of the El Paso City Code to add regulations for mobile billboards. The penalty is as provided for in Section 15.08.160 of the El Paso City Code	1 Added	15.08.160
19302	2-28-2022	An emergency ordinance re-enacting emergency Ordinance No. 019035 extending a disaster declaration due to a public health emergency		Omitted
19303	2-28-2022	An emergency ordinance re-enacting emergency Ordinance No. 019036 instituting emergency measures, as re-enacted, restated and amended by emergency Ordinance No. 019151; and further re-enacted and amended by emergency Ordinance Nos. 019156, 019169, 019191 and 019284; penalty as provided in Section 8		Omitted
19304	2-28-2022	An emergency ordinance re-enacting emergency Ordinance No. 019241; allowing temporary uses on the public right-of-way and private property by suspending various city ordinances; penalty as provided in Section 6		Omitted
19305	3- 1-2022	An ordinance authorizing the city manager to sign the third amendment to Ordinance No. 019146, the contract of sale between the City of El Paso and VTRE Development, LLC to extend the deadline by which the buyer must submit building permit plans; amend the property boundaries to a 29.3651 acre parcel of land generally located at the southeast corner of Interstate 10 and Paseo Del Norte, legally described as a portion of Lot 1, Block 1, El Paso West, as filed in Book 57, Page 6 of the plat records of El Paso County, Texas; amend the purchase price to $12,529,215.48; and extend the closing and termination dates		Omitted
19306	3- 1-2022	An ordinance changing the zoning of Lot 1, Block 2, Butterfield Trail Aviation Park Unit Three, Replat "A", as recorded in File No. 20210042139, El Paso County Plat Records; and portions of Sections 22, 23, 26 and 27, Block 80, Township 2, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas from C-4 (Commercial) to M-1 (Light Manufacturing). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the future land use designation for the property and is in accordance with Plan El Paso, the city's comprehensive plan. subject property: South of Liberty Expressway and east of Global Reach Drive Applicant: City of El Paso, PZRZ21-00030		Omitted
19307	3- 1-2022	An ordinance granting Special Permit No. PZST21-00016, to allow for a governmental use, building (fire station) on the property described as Lots 17 to 20, Block 21, Montclair #3, 2405 McRae Boulevard, City of El Paso, El Paso County, Texas, Pursuant to Section 20.04.320 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. The proposed special permit meets the intent of the future land use designation for the property and is in accordance with Plan El Paso, the city's comprehensive plan. Subject Property: 2405 McRae Boulevard Applicant: City of El Paso, PZST21-00016		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19308	3- 1-2022	An ordinance changing the zoning for the property described as a portion of Lot A, Block 20, Montclair Unit Three, 9640 Montwood Drive, City of El Paso, El Paso County, Texas from R-3 (Residential) to C-1 (Commercial), and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 9640 Montwood Drive. Applicant: 9640 Montwood LLC, PZRZ21-00026		Omitted
19309	3-15-2022	An ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.041 (Schedule IVA - Parking prohibited during certain hours - school days only) of the City Code to amend paragraph A to delete certain streets and to add paragraph B to prohibit parking between the hours of 7:00 a.m. To 5:00 p.m. School days only on certain streets; amending section 12.88.030 (Schedules III - Parking prohibited at all times on certain streets), paragraph 355, to amend the prohibited parking area; amending Section 12.88.200 (Schedules XVII - Restrictions on parking in residential districts) to amend Zone K to delete certain streets; amending Section 12.88.200 (Schedules XVII - Restrictions on parking in residential districts) to amend Zone N to amend prohibited parking times and add certain streets; the penalty being provided in Chapter 12.84 of the El Paso City Code	1	12.88.041 A.
			2 Added	12.88.041 B.
			3	12.88.030 III.355
			4	12.88.200 Zone K
			5	12.88.200 Zone N
19310	3-15-2022	An ordinance amending the 2025 Proposed Thoroughfare System, as incorporated into Plan El Paso, to delete the future extension of Bill Burnett Drive from Mercantile Avenue to Paseo del Este Boulevard		Omitted
19311	3-28-2022	An emergency ordinance re-enacting emergency Ordinance No. 019035 extending a disaster declaration due to a public health emergency		Omitted
19312	3-28-2022	An emergency ordinance re-enacting emergency Ordinance No. 019036 instituting emergency measures, as re-enacted, restated and amended by emergency Ordinance No. 019151; and further re-enacted and amended by emergency Ordinance Nos. 019156, 019169, 019191 and 019284; penalty as provided in Section 8		Omitted
19313	3-28-2022	An emergency ordinance re-enacting emergency ordinance no. 019241; allowing temporary uses on the public right-of-way and private property by suspending various city ordinances; penalty as provided in Section 6		Omitted
19314	3-29-2022	An ordinance authorizing the issuance of "City of El Paso, Texas, Municipal Drainage Utility System Revenue Bonds, Series 2022" pledging the net revenues of the municipal drainage utility system to the payment of such bonds; and resolving other matters which are necessary to effect such issuance		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19315	3-29-2022	An ordinance authorizing the issuance of "City of El Paso, Texas, Water and Sewer Revenue Improvement and Refunding Bonds, Series 2022" for system improvements and to refund certain previously issued obligations of the city; and resolving matters which are necessary to effect such issuance, including the delegation of matters relating to the sale and issuance of the bonds to an authorized City officer or employee within certain specified parameters		Omitted
19316	3-29-2022	An ordinance amending the future land use map (FLUM) contained in "Plan El Paso" for the properties legally described as a portion of Section 17, Block 79, Township 3 of the T & P RR Company Surveys, City of El Paso, El Paso County, Texas, from O6, Potential Annexation to G4, Suburban (Walkable). Subject property: South of Bob Hope Drive and East of Joe Battle Boulevard Applicant: Socorro Independent School District, PLCP20-00001		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19317	3-29-2022	An ordinance changing the zoning of the following real property known as PARCEL 1: The East ½ of the Northeast ¼ of the Southwest ¼ of the Southwest ¼, Section 17, Block 79, Township 3, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas, from R-F (Ranch and Farm) TO C-4 (Commercial); and, PARCEL 2: The East ½ of the Northwest ¼ of the Southwest ¼ of the Southwest ¼ & the West ½ of the Northwest ½ of the Southwest ¼ of the Southwest ¼, Section 17, Block 79, Township 3, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas, from R-F (Ranch and Farm) TO C-4 (Commercial); and, PARCEL 3: The Southeast ¼ of the Southwest ¼ of the Southwest ¼, Section 17, Block 79, Township 3, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas, from R-F (Ranch and Farm) TO C-4 (Commercial); and, PARCEL 4: The West ½ of the Southwest ¼ of the Southwest ¼ of the Southwest ¼ Section 17, Block 79, Township 3, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas, from R-F (Ranch and Farm) TO C-4 (Commercial); and, PARCEL 5: The West ½ of the Southwest ¼ of the Northwest ¼ of the Southwest ¼, Section 17, Block 79, Township 3, Texas and Pacific Railway Company Survey, City of El Paso, El Paso County, Texas, from R-F (Ranch and Farm) TO C-4 (Commercial); and, PARCEL 6: The East ½ of the Southwest ¼ of the Southwest ¼ of the Southwest ¼, Section 17, Block 79, Township 3, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas, from R-F (Ranch and Farm) TO C-4 (Commercial); and, PARCEL 7: The West ½ of the Northwest ½ of the Southwest ¼ of the Southwest ¼, Section 17, Block 79, 22-223 Page 11 of 18 Township 3, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas, from R-F (Ranch and Farm) TO C-4 (Commercial); and, PARCEL 8: The West ½ of the Southeast ¼ of the Northwest ¼ of the Southwest ¼, Section 17, Block 79, Township 3, Texas and Pacific Railway Company Surveys City of El Paso, El Paso County, Texas, from R-F (Ranch and Farm) TO C-4 (Commercial); and, PARCEL 9: The East ½ of the Southeast ¼ of the Northwest ¼ of the Southwest ¼, Section 17, Block 79, Township 3, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas, from R-F (Ranch and Farm) TO C-4 (Commercial); and, PARCEL 10: The East ½ of the Southwest ¼ of the Northwest ¼ of the Southwest ¼, Section 17, Block 79, Township 3, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas, from R-F (Ranch and Farm) TO C-4 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: South of Bob Hope Drive and East of Joe Battle Boulevard Applicant: Socorro Independent School District, PZRZ20-00016		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19318	3-29-2022	An ordinance changing the zoning of a portion of Lot 12 and 13, save and except a portion thereof, R.L. Dorbandt Subdivision, 170 Polo Inn Road, City of El Paso, El Paso County, Texas from R-4 (Residential) to R-MU (Residential Mixed Use) and approving a Master Zoning Plan. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the future land use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject property: 170 Polo Inn Road. Applicant: Ricardo Pacheco and Cynthia Pacheco, PZRZ21-00025		Omitted
19319	4-12-2022	An Ordinance changing the zoning of a portion of the Southwest ¼ of the Northwest ¼ of Section 16, Block 79, Township 3, Texas and Pacific Railway Company Surveys, 1500 Joe Battle Boulevard, City of El Paso, El Paso County, Texas from R-3 (Residential) to C-3 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 1500 Joe Battle Boulevard; Applicant: City of El Paso, PZRZ21-00009		Omitted
19320	4-12-2022	An Ordinance releasing all conditions placed on property by Ordinance No. 8786 which changed the zoning of a portion of Lots 2 and 3 and all of Lots 4, 5, 6, 7 and 8, and the east 10' of Lot 9, Block 7, Golden Hill Addition, 1519 and 1525 Golden Hill Terrace Street, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed condition release meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 1519 and 1525 Golden Hill Terrace Street; Applicant: ML Real Property LLC, PZCR21-00001		Omitted
19321	4-12-2022	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.030 (Schedule III - Parking Prohibited at all times on certain streets) of the city code, to add paragraph 387 to prohibit parking on certain portions of Schwarzkopf Drive; the penalty being provided in Chapter 12.84 of the El Paso City Code	1 Added	12.88.030, III.387
19322	4-25-2022	An Emergency Ordinance re-enacting Emergency Ordinance No. 019035 extending a Disaster Declaration due to a Public Health Emergency		Omitted
19323	4-25-2022	An Emergency Ordinance re-enacting Emergency Ordinance No. 019036 instituting emergency measures, as re-enacted, restated and amended by Emergency Ordinance No. 19151; and further re-enacted and amended by Emergency Ordinance Nos. 19156, 19169, 19191 and 19284; penalty as provided in Section 8		Omitted
19324	4-25-2022	An Emergency Ordinance re-enacting Emergency Ordinance No. 19241; allowing temporary uses on the public right of way and private property by suspending various city ordinances; penalty as provided in Section 6		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19325	4-26-2022	An Ordinance authorizing the issuance of "City of El Paso, Texas, Municipal Drainage Utility System Revenue Refunding Bonds, Series 2022A," in an amount not to exceed $25,330,000, to refund certain previously issued obligations of the City; and resolving matters which are necessary to effect such issuance, including the delegation of matters relating to the sale and issuance of the bonds to an authorized city officer or employee within certain specified parameters		Omitted
19326	4-26-2022	An Ordinance granting Special Permit No. PZST21-00018, to allow for a crematorium on the property described as Lots 6 and 7, Block 2, Golden Gate Commercial Park, 1755 Zaragoza Road, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed special permit meets the intent of the Future Land Use designation for the property and is in accordance with *Plan El Paso*, the City's Comprehensive Plan. Subject Property: 1755 Zaragoza Road; Applicant: Golden Gate Family LTD, PZST21-00018 [Postponed from 03-29-2022]		Omitted
19327	4-26-2022	An Ordinance amending various sections of Title 19 (Subdivision and Development Plats), to adopt the El Paso Street Design Manual, to update references to the design standards for construction to the street design manual, and to update standards of construction for streets. The Penalty is as provided in Chapter 19.42 of the El Paso City Code	1 Added	Tit. 19, App. 113
			2	19.01.010 D.
			3	19.02.030
			4	19.02.040
			5	19.03.020 D.
			6	19.03.030
			7	19.03.040 G.
			8	19.04.030 B.
			9	19.04.040 B.7
			10	19.04.070 C., D.
			11	19.08.010
			12	19.08.050 A.1
			13	19.09.030
			14	19.11.010 A.
			15	19.11.020 C.1
			16	19.12.020
			17	19.14.005 B.1
			18	19.14.020
			19	19.15.010
			20	19.15.020 B.3
			21	19.15.050
			22	19.15.060
			23	19.15.070

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			24	19.15.080
			25	19.15.090
			26	19.15.100
			27	19.15.110
			28	19.15.120
			29	19.15.130
			30	19.15.140
			31	19.15.160
			32	19.16.010
			Rpld	19.16.020
			Rnbd	19.16.030
			as	19.16.020
			33 Rpld	Ch. 19.17, 19.17.010, 19.17.020
			Added	Ch. 19.17, 19.17.010
			34	19.19.010 A.3
			35	19.20.010
			36	19.20.030 B.
			37	19.20.050
			38	19.21.020
			39	19.21.050
			40	19.23.040 H.1
			41	19.23.050
			42	19.26.040
			43	19.26.050
			44	19.26.060
			45	19.37.060 A.
			46	19.45.010 A.
			47—52	19.50.030
19328	4-26-2022	An Ordinance amending the 2025 proposed thoroughfare system, as incorporated into "*Plan El Paso*" to add context area classifications to all included thoroughfares and to make minor changes to the thoroughfare system based on existing conditions and development patterns		Omitted
19329	4-26-2022	An Ordinance amending Ordinance 011469 merging the membership of the Foster Grandparent Program Advisory Council and the Retired and Senior Volunteer Program Advisory Council into the AmeriCorps Seniors Advisory Council		Omitted
19330	5-23-2022	An Emergency Ordinance re-enacting Emergency Ordinance No. 19035 extending a Disaster Declaration due to a Public Health Emergency		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19331	5-23-2022	An Emergency Ordinance re-enacting Emergency Ordinance no. 19036 instituting emergency measures, as re-enacted, restated and amended by Emergency Ordinance no. 19151; and further re-enacted and amended by Emergency Ordinance nos. 19156, 19169, 19191 and 19284; penalty as provided in section 8		Omitted
19332	5-23-2022	An Emergency Ordinance re-enacting Emergency Ordinance No. 19241; allowing temporary uses on the public right of way and private property by suspending various City Ordinances; penalty as provided in Section 6		Omitted
19333	5-23-2022	An Emergency Ordinance authorizing the City Manager to assign personnel and resources to assist in addressing the Humanitarian and Public Safety Crisis resulting from a mass migration through El Paso		Omitted
19334	5-24-2022	An Ordinance changing the zoning of being all of Tract 1D, U.S. Government Parcel #6, and a portion of Tract 14-A, and Tract 15-B, Block 27, Ysleta Grant, 175 Midway Drive, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) and C-4 (Commercial) to C-1 (Commercial), and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with *Plan El Paso*, the City's Comprehensive Plan. Subject Property: 175 Midway Drive; Applicant: Ysleta Independent School District, PZRZ21-00027		Omitted
19335	5-24-2022	An Ordinance to amend Title 5 (Business License and Permit Regulations) Chapter 5.02 (Alcoholic Beverages), Section 5.02.090 (City Protest of Permit/License), Section 5.02.100 (City Liquor License/Permit - Fee) and Section 5.02.140 (Liquor License/Permit - Term); The penalty as provided in Section 5.02.170 (Violations and Penalties) of the El Paso City Code	1	5.02.090
				5.02.100
				5.02.140
19336	6-21-2022	Discussion and action on an Emergency Ordinance re-enacting Emergency Ordinance No. 19035 extending a Disaster Declaration due to a Public Health Emergency		Omitted
19337	6-21-2022	An Emergency Ordinance re-enacting Emergency Ordinance No. 19036 instituting emergency measures, as re-enacted, restated, and amended by Emergency Ordinance No. 19151; and further re-enacted and amended by Emergency Ordinance Nos. 19156, 19169, 19191, and 19284; penalty as provided in Section 8		Omitted
19338	6-21-2022	An Emergency Ordinance re-enacting Emergency Ordinance No. 19241; allowing temporary uses on the public right of way and private property by suspending various city ordinances; penalty as provided in Section 6		Omitted
19339	6-21-2022	Discussion and action on an Emergency Ordinance re-enactment authorizing the City Manager to assign personnel and resources to assist in addressing the humanitarian and public safety crisis resulting from mass migration through El Paso		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19340	6-22-2022	An Ordinance amending the Future Land Use Map (FLUM) contained in "Plan El Paso" for the properties legally described as Tract 1C, Block 1 and Tract 1A, Block 2, Ysleta Grant, 9879 North Loop Drive, City of El Paso, El Paso County, Texas, from O-3, Agriculture to G-7, Industrial and/or Railyards. Subject Property: 9879 North Loop Drive; Applicant: Hunt Eastlake Industrial, LLC. PLCP21-00004		Omitted
19341	6-22-2022	An Ordinance changing the zoning of Tract 1C, Block 1 and Tract 1A, Block 2, Ysleta Grant, 9879 North Loop Drive, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) to C-4/c (Commercial/condition) and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with "Plan El Paso," the City Comprehensive Plan. Subject Property: 9879 North Loop Drive; Applicant: Hunt Eastlake Industrial, LLC, PZRZ21-00017		Omitted
19342	6-22-2022	An Ordinance amending the Future Land Use Map (FLUM) contained in "Plan El Paso" for the properties legally described as Tract 2, 2B, and 3D, Block 2, Ysleta Grant, City of El Paso, El Paso County, Texas, from O-3, Agriculture to G-4, Suburban (Walkable). Subject Property: North of Inglewood Drive and West of North Loop Drive; Applicant: BRE Development, LLC. PLCP21-00005		Omitted
19343	6-22-2022	An Ordinance changing the zoning of Tracts 2, 2B, and 3D, Block 2, Ysleta Grant, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) to A-O/c (Apartment/Office/condition), and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with "Plan El Paso," the City's Comprehensive Plan. Subject Property: North of Inglewood Drive and West of North Loop Drive; Applicant: BRE Development, LLC. PZRZ21-00035		Omitted
19344	6-22-2022	An Ordinance changing the zoning of a portion of Lot 1, Block 4, Riverside International Industrial Center, 9751 Pan American Drive, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) to M-1 (Light Manufacturing). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 9751 Pan American Drive; Applicant: El Paso Water, PZRZ22-00004		Omitted
19345	6-22-2022	An Ordinance changing the zoning of a portion of Tract 3A, Nellie D. Mundy Survey No. 240, an addition to the City of El Paso, El Paso County, Texas from R-3 (Residential) to A-4 (Apartment), and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with *Plan El Paso*, the City's Comprehensive Plan. Subject Property: State Highway Spur 16 and Isela Rubalcava Ave.; Applicant: Westonlane, LLC, PZRZ22-00002		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19346	6-22-2022	An Ordinance authorizing the City Manager to execute a quitclaim (tax resale) deed conveying all right, title and interest in real property described as Lots Twenty-nine (29) and Thirty (30) in Block Two (2), Orchard Park Addition to the City of El Paso, El Paso County, Texas, to Figueroa Holdings, LLC (Figueroa), in accordance with Section 34.05(h) of the Tax Code. This Deed is executed as a Corrected Tax Resale Deed, given and accepted in place of that deed executed by the City Manager, to Figueroa Holdings, LLC, so named in that instrument, dated September 14, 2018, and recorded in Ordinance Number 018848, in accordance with Section 34.05(h) of the Tax Code. Said prior deed contained a clerical error in the property's legal description. This Deed corrects the error and confirms the deed described above, and it shall be effective as of and retroactive to September 14, 2018 for the following described real property: Lot Twenty-nine (29) and a portion of lot Thirty (30), (30 ft. on street, 116.6 ft. on the North, 44 ft. on the East, and 115 ft. on the South) 4255 sq. ft., in Block Two (2), Orchard Park Addition to the City of El Paso, El Paso County, Texas		Omitted
19357	8- 2-2022	An Ordinance authorizing the issuance of City of El Paso, Texas, Water and Sewer Revenue Bonds, in one or more series, in an aggregate amount not to exceed $441,000,000 for System improvements and to refund certain obligations issued for System improvements; and resolving matters which are necessary to effect such issuance, including the delegation of matters relating to the sale and issuance of the bonds to an authorized City officer or employee within certain specified parameters		Omitted
19358	8- 2-2022	An Ordinance authorizing the issuance of "City of El Paso, Texas, Municipal Drainage Utility System Revenue Refunding Bonds, Series 2023" in an amount not to exceed $25,330,000 to refund certain previously issued obligations of the City; and resolving matters which are necessary to effect such issuance, including the delegation of matters relating to the sale and issuance of the bonds to an authorized City officer or employee within certain specified parameters		Omitted
19359	8- 2-2022	An Ordinance changing the zoning of a portion of Tract 9A1, 9B1, Laura E. Mundy Survey 238 and a portion of Nellie D. Mundy Survey No. 244, City of El Paso, El Paso County, Texas from R-5/c (Residential/conditions) to C-2/c (Commercial/conditions) and from R-5/sp (Residential/special permit) to C-2 (Commercial) and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: Generally North of Transmountain Road and East of Interstate 10. Applicant: EP Transmountain Residential, LLC. PZRZ22-00009		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19360	8- 2-2022	An Ordinance changing the zoning of a portion of the East 300 feet of North 150 feet of South 165 feet of Tract 9-D, First Supplemental Map of Parkland Addition, City of El Paso, El Paso County, Texas from R-4 (Residential) to A-O (Apartment/Office) and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: North of Woodrow Bean Transmountain Drive and East of Bomarc Street. Applicant: CEA Group, PZRZ22-00015		Omitted
19361	8- 2-2022	An Ordinance granting a Special Privilege License to 1031 Firestone, LLC to permit the construction, installation, maintenance use and repair of an aerial encroachment of an outdoor stairway for additional access to the property located at 1025 Texas Avenue, El Paso, Texas; setting the License term for a term of 15 years with one renewable 15-year term. Subject Property: 1025 Texas. Applicant: 1031 Firestone, LLC, NESV2022-00002		Omitted
19362	8- 2-2022	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.150 (Schedule XIV-Speed Limits), to amend paragraph N (Speed limits on the following of Pershing Drive and Dyer Street) subparagraph 2; and to amend by deleting paragraph N (Speed limits on the following of Pershing Drive and Dyer Street) subparagraph 3, to amend by deleting paragraph N (Speed limits on the following of Pershing Drive and Dyer Street) subparagraph 4; and to amend by deleting paragraph N (Speed limits on the following of Pershing Drive and Dyer Street) subparagraph 5; the penalty being provided in Chapter 12.84 of the El Paso City Code	1—4	12.88.150 N.
19363	8-15-2022	An emergency ordinance re-enacting emergency Ordinance No. 019035 extending a disaster declaration due to a public health emergency		Omitted
19364	8-15-2022	An emergency ordinance re-enacting emergency Ordinance No. 019036 instituting emergency measures, as re-enacted, restated and amended by emergency Ordinance No. 019151; and further re-enacted and amended by emergency Ordinance Nos. 019156, 019169, 019191 and 019284; penalty as provided in Section 8		Omitted
19365	8-15-2022	An emergency ordinance re-enacting emergency Ordinance No. 019241; allowing temporary uses on the public right-of-way and private property by suspending various city ordinances; penalty as provided in Section 6		Omitted
19366	8-15-2022	An emergency ordinance extending emergency Ordinance No. 019333 authorizing the City Manager to assign personnel and resources to assist in addressing the humanitarian and public safety crisis resulting from a mass migration through El Paso		Omitted
19367	8-16-2022	An Ordinance calling a Bond Election to be held in the City of El Paso, Texas, on November 8, 2022, making provisions for the conduct of the election and resolving other matters incident and related to such election		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19368	8-16-2022	An Ordinance granting Special Permit No. PZST22-00007, to allow for Infill Development with a reduction in lot area, lot depth, rear yard setback, and cumulative front and rear yard setback, and imposing a condition on the property described as a portion of Lot 25 and a portion of Lot 26, Block J, Thomas Manor Unit Six, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code		Omitted
19369	8-23-2022	An ordinance levying FY2023 taxes		Omitted
19370	8-30-2022	An Ordinance vacating a 1,947 square-foot portion of Grandview Avenue located within Block 7, Highland Park Addition, City of El Paso, El Paso County, Texas. Subject Property: 1901 Grandview Ave. Applicant: Physician Reliance, LLC SURW22-00003		Omitted
19371	8-30-2022	An Ordinance vacating a 1,742 square-foot portion of a 20 foot wide alley and utility easement located within Block 2, Mills Map Addition, City of El Paso, El Paso County, Texas. Subject Property: 415 North Mesa St. Applicant: Mills Plaza Properties VIII, LP SURW22-00002		Omitted
19372	8-30-2022	An Ordinance amending Ordinance 8064 (Classification and compensation Plan) to amend Section 4.5 (Observed Holidays) to add Cesar Chavez Day		Omitted
19373	9-12-2022	Discussion and action on an Emergency Ordinance re-enacting Emergency Ordinance No. 019035 extending a Disaster Declaration due to a Public Health Emergency		Omitted
19374	9-12-2022	An Emergency Ordinance re-enacting Emergency Ordinance No. 019036 instituting emergency measures, as re-enacted, restated, and amended by Emergency Ordinance No. 019151; and further re-enacted and amended by Emergency Ordinance Nos. 019156, 019169, 019191, and 019284; penalty as provided in Section 8		Omitted
19375	9-12-2022	Discussion and action on an Emergency Ordinance re-enacting Emergency Ordinance No. 019241; allowing temporary uses on the public right-of-way and private property by suspending various city ordinances; Penalty as provided in Section 6		Omitted
19376	9-12-2022	Discussion and action on an Emergency Ordinance re-enactment authorizing the City Manager to assign personnel and resources to assist in addressing the humanitarian and public safety crisis resulting from mass migration through El Paso		Omitted
19377	9-13-2022	An Ordinance changing the zoning of a portion of Tracts 3 & 4, Block 6, Christy Tract, in Block 31, Ysleta Grant, 541 Schwabe Street, City of El Paso, El Paso County, Texas from R-3 (Residential) and R-F (Ranch and Farm) to R-5 (Residential). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 541 Schwabe Street. Applicant: John Sayen and Rosa Isela Sayen, PZRZ22-00010		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19378	9-13-2022	An Ordinance changing the zoning of the East ½ of Lot 22, Block B, Pioneer Subdivision, 6519 S. Angora Loop Street, City of El Paso, El Paso County, Texas from R-4 (Residential) to A-O (Apartment/Office). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 6519 S. Angora Loop St. Applicant: Sofia Aguilera, PZRZ21-00032		Omitted
19379	9-13-2022	An Ordinance removing a condition placed on property by Ordinance No. 15503 which changed the zoning of Lot 1, Block 1, of Leegacy Subdivision, 1426 George Dieter Drive, City of El Paso, El Paso County, Texas, and which imposed a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed condition release meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 1426 George Dieter Drive. Applicant: Dr. William Boushka, EBB Holding LLC, PZCR22-00002		Omitted
19380	9-13-2022	An Ordinance changing the zoning of Tract 17-C-85, Section 8, Block 79, Township 3, Texas Pacific Railway Surveys, 1681 Joe Battle Boulevard, City of El Paso, El Paso County, Texas from R-3 (Residential) to C-3 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 1681 Joe Battle Boulevard. Applicant: Vesir Properties LLC, PZRZ22-00013		Omitted
19381	9-13-2022	An Ordinance changing the zoning of Tract 5A, Section 15, Block 80, Township 1, Texas and Pacific Railway Company Surveys, 12191 Railroad Drive, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) to C-4 (Commercial), and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 12191 Railroad Drive. Applicant: Jose Frias, PZRZ22-00017		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19382	9-13-2022	An Ordinance changing the zoning of the following real property known as: Parcel-7: the east 10 feet of Lot 4 and all of Lots 5, 6, and 7, Los Ranchitos Subdivision Replat, City of El Paso, El Paso County, Texas, from C-1 (Commercial) to R-4 (Residential); and, Parcel-8: Lots 8, 9, 10, 11, and 12, Los Ranchitos Subdivision Replat, City of El Paso, El Paso County, Texas, from C-2/sc (Commercial/special contract) to R-4/sc (Residential/special contract); and, Parcel-9: Lots 13, 14, 15, and 16, Los Ranchitos Subdivision, City of El Paso, El Paso County, Texas, from C-1/sc (Commercial/special contract) to R-4/sc (Residential/special contract); and, Parcel-10: Lot 85, Los Ranchitos Subdivision, City of El Paso, El Paso County, Texas, from C- 1/sc (Commercial/special contract) to R-4/sc (Residential/special contract); and, Parcel-11: Lots 82, 83, and 84, Los Ranchitos Subdivision, City of El Paso, El Paso County, Texas, from C-1 (Commercial) to R-4 (Residential); and, Parcel-12: Lots 62 and 77, Los Ranchitos Subdivision, City of El Paso, El Paso County, Texas, from C-1 (Commercial) to R-4 (Residential); and, Parcel-13: Lot 76, Los Ranchitos Subdivision, City of El Paso, El Paso County, Texas, from C-1/sc (Commercial/special contract) to R-4/sc (Residential/special contract); and, Parcel-14: Lot 76, Los Ranchitos Subdivision, City of El Paso, El Paso County, Texas, from C- 1 (Commercial) to R-4 (Residential); and, Parcel-15: Tract 11, Section 38, Block 81, Township 1, T&P Railway Co. Surveys, City Of El Paso, El Paso County, Texas, from A-M/sc (Apartment/Mobile Home Park/special contract) to R-4/sc (Residential/special contract); and, Parcel-16: lots 22, 23, 24, and 51, Los Ranchitos Subdivision, City of El Paso, El Paso County, Texas, from R-4/sp (Residential/special permit) to R-4 (Residential), and that Special Permit Ordinance No. 12205 approved on December 20, 1994 is hereby rescinded; and, Parcel-17: Lots 27 and 28, Los Ranchitos Subdivision, City of El Paso, El Paso County, Texas, from R-4/sp (Residential/special permit) to R-4 (Residential), and that Special Permit Resolution No. SP 82-9 approved on June 1, 1982 is hereby rescinded; and, Parcel-18: Lots 54 and 55, Los Ranchitos Subdivision, City of El Paso, El Paso County, Texas, from A-O (Apartment/Office) to R-4 (Residential), The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 5510 Will Ruth Ave. Applicant: El Paso Water, PZRZ22-00006		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
19383	9-13-2022	An Ordinance changing the zoning of Lot 1, Block 1, Shadow Mountain Unit 2, City of El Paso, El Paso County, Texas from C-1 (Commercial) to G-MU (General Mixed Use) and approving a Master Zoning Plan, and amending the Master Zoning Plan approved on July 19, 2016, by Ordinance No. 18541 for the rezoning to G-MU (General Mixed Use) of Lot 1, Block 1, Shadow Mountain, 201 Shadow Mountain Drive, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning and master zoning plan amendment meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 201 Shadow Mountain Dr. Applicant: Meyers Group, Oswaldo Hernandez, PZRZ22-00007		Omitted
19384	9-27-2022	An Ordinance vacating a 0.012 acre and 0.018 acre portions of City Right-of-way adjacent to a portion of Pioneer Plaza, Block 5 and all of Lot 28, Block 6, Mills Addition, City of El Paso, El Paso County, Texas. Subject Property: 106 W Mills Ave. Applicant: Mills Plaza Properties II, LP and Mills Plaza Parking II, LP, SURW22-00011		Omitted
19385	9-27-2022	An Ordinance granting a Special Privilege License to Airwavz Solutions, Inc. for the construction, installation, maintenance, use and repair of 62 linear feet of all necessary, desirable, subsurface wires, cables, underground conduits, manholes or other structures and appurtenances in connection with telecommunication systems and fiber optic, conduit and cables within a portion of City right-of-way underneath Curie Drive; setting the license term for a term of five years with two renewable five-year terms. Subject Property: 1740 Curie Drive. Applicant: Airwavz Solutions, Inc., PSPN22-00001		Omitted
19386	9-27-2022	An Ordinance to amend the 2025 Major Thoroughfare Plan to delete a portion of Roanoke Dr., a proposed north/south connection between Threadgill Avenue and Will Ruth Avenue		Omitted
019387	10-10-2022	Discussion and action on an Emergency Ordinance re-enacting Emergency Ordinance No. 019035 extending a Disaster Declaration due to a Public Health Emergency		Omitted
019388	10-10-2022	An Emergency Ordinance re-enacting Emergency Ordinance No. 019036 instituting emergency measures, as re-enacted, restated, and amended by Emergency Ordinance No. 019151; and further re-enacted and amended by Emergency Ordinance Nos. 019156, 019169, 019191, and 019284; penalty as provided in Section 8		Omitted
019389	10-10-2022	Discussion and action on an Emergency Ordinance re-enacting Emergency Ordinance No. 019241; allowing temporary uses on the public right of way and private property by suspending various city ordinances; Penalty as provided in Section 6.		Omitted
019390	10-11-2022	An Emergency Ordinance extending Emergency Ordinance No. 019333 authorizing the city manager to assign personnel and resources to assist in addressing the humanitarian and public safety crisis resulting from a mass migration through El Paso		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019391	10-11-2022	An Ordinance renewing and extending the Special Privilege License granted to the United States of America, acting by and through the Department of the Navy, Naval Facilities Engineering Command Southeast, as owner of the Naval Operations Support Center (NOSC) El Paso, to permit the continued use, maintenance and repair of a surface encroachment of curbing, guttering and security fence over a portion of city right-of-way along Truman Avenue and adjacent to the NOSC El Paso located at 4810 Pollard Street, El Paso, Texas; setting the license term for a term of one (1) year with six (6) additional one (1) year renewal options.		Omitted
019392	10-25-2022	An Ordinance changing the zoning of Lots 17 to 20, Block 52, Bassett, 2101 Texas Avenue, City of El Paso, El Paso County, Texas from A-3/SP (Apartment/Special Permit) to C-4 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 2101 Texas Avenue. Applicant: D & H Enrique Properties, LLC., PZRZ22-00020		Omitted
019393	10-25-2022	An Ordinance granting Special Permit No. PZST22-00011, to allow for Infill Development with a reduction in rear yard setback and side street yard setback and 100% parking reduction on the property described as Lots 17 to 20, Block 52, Bassett, 2101 Texas Avenue, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development and 20.14.070 Parking Reduction of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. The proposed special permit meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 2101 Texas Avenue. Applicant: D & H Enrique Properties, LLC., PZST22-00011		Omitted
019394	10-25-2022	An Ordinance changing the zoning of a portion of Tract 4, Kilpatrick Subdivision, 8636 North Loop Drive, City of El Paso, El Paso County, Texas from A-2 (Apartment) to C-3 (Commercial) and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 8636 North Loop Drive. Applicant: Rojas Pullman Trust, PZRZ22-00018		Omitted
019395	11- 7-2022	Discussion and action on an Emergency Ordinance re-enacting Emergency Ordinance No. 019035 extending a Disaster Declaration due to a Public Health Emergency.		Omitted
019396	11- 7-2022	An Emergency Ordinance re-enacting Emergency Ordinance No. 019036 instituting emergency measures, as re-enacted, restated, and amended by Emergency Ordinance No. 019151; and further re-enacted and amended by Emergency Ordinance Nos. 019156, 019169, 019191, and 019284; penalty as provided in Section 8.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019397	11- 7-2022	Discussion and action on an Emergency Ordinance re-enacting Emergency Ordinance No. 019241; allowing temporary uses on the public right of way and private property by suspending various city ordinances; Penalty as provided in Section 6.		Omitted
019398	11- 7-2022	Discussion and action on an Emergency Ordinance re-enactment authorizing the City Manager to assign personnel and resources to assist in addressing the humanitarian and public safety crisis resulting from mass migration through El Paso.		Omitted
019399	11- 8-2022	An Ordinance changing the zoning of the property described as Lot 3, Block 42, Magoffin Addition, 815 Tays Street, City of El Paso, El Paso County, Texas from A-3 (Apartment) and C-1 (Commercial) to S-D (Special Development), pursuant to Section 20.04.360, and approving a detailed site development plan pursuant to Section 20.04.150 and 20.10.360 of the El Paso City Code to allow for an office and district area, front yard setback and side yard setback reductions as permitted in the S-D (Special Development) zone district. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 815 Tays Street. Applicant: ALU-Copper A R LLC. - PZRZ22-00026		Omitted
019400	11- 8-2022	An Ordinance granting Special Permit No. PZST22-00008, to allow for parking spaces (serving another property) on the property described as Tract 6-B and 18-B, Block 4, Upper Valley Surveys, 5020 Country Club Place, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.260 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. The proposed special permit meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 5020 Country Club Place. Applicant: El Paso Country Club - PZST22-00008		Omitted
019401	11- 8-2022	An Ordinance changing the zoning of Lots 1 and 2, Block 6, Highland Park, 1837 Grandview Avenue, City of El Paso, El Paso County, Texas from R-5 (Residential) to A-O (Apartment/Office), and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 1837 Grandview Ave. Applicant: Marcela V. De Panetta, PZRZ21-00033		Omitted
019402	11- 8-2022	An Ordinance releasing conditions No. 2 and No. 3 placed on property by Ordinance No. 5193 which changed the zoning of portion of H. F. Fisher Survey No. 293, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed condition release meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 1837 Grandview Ave. Applicant: Marcela V. De Panetta, PZCR22-00001		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019403	11- 8-2022	An Ordinance vacating a 3.81 acre portion of Threadgill Avenue, Ranchito Avenue, Roanoke Avenue, Rutledge Place, and Albany Drive, located within Los Ranchitos Subdivision, City of El Paso, El Paso County, Texas. Applicant: El Paso Water Utilities - Public Service Board, SURW22-00007		Omitted
019404	11-22-2022	An Ordinance changing the zoning of Lots 1 through 16, Block 36, East El Paso, 3200 and 3230 Durazno Avenue, City of El Paso, El Paso County, Texas from M-1 (Light Manufacturing) to G-MU (General Mixed Use) and approving a master zoning plan. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 3200 and 3230 Durazno Ave. Applicant: Spaghetti Bowl Properties, LLC, PZRZ22-00025		Omitted
019405	12- 5-2022	Discussion and action on an Emergency Ordinance re-enacting Emergency Ordinance No. 019035 extending a Disaster Declaration due to a Public Health Emergency.		Omitted
019406	12- 5-2022	An Emergency Ordinance re-enacting Emergency Ordinance No. 019036 instituting emergency measures, as re-enacted, restated, and amended by Emergency Ordinance No. 019151; and further re-enacted and amended by Emergency Ordinance Nos. 019156, 019169, 019191, and 019284; penalty as provided in Section 8.		Omitted
019407	12- 5-2022	Discussion and action on an Emergency Ordinance re-enacting Emergency Ordinance No. 019241; allowing temporary uses on the public right of way and private property by suspending various city ordinances; Penalty as provided in Section 6.		Omitted
019408	12- 5-2022	Discussion and action on an Emergency Ordinance re-enactment authorizing the City Manager to assign personnel and resources to assist in addressing the humanitarian and public safety crisis resulting from mass migration through El Paso.		Omitted
019409	12- 6-2022	An Ordinance amending Title 13 (Streets, Sidewalks and Public Places), Chapter 13.34 (Picketing), Section 13.34.020 (Notice of Intent to Picket) to add exceptions and spontaneous events; Chapter 13.34 (Picketing), Section 13.34.030 (Receipt of Notification) to delete and reserve; Chapter 13.34 (Picketing), Section 13.34.050 (Violation) to delete and reserve; Chapter 13.36 (Parades and Public Assemblies) to amend chapter title to 'Parades;' Chapter 13.36 (Parades and Public Assemblies), Section 13.36.010 (Definitions) to delete 'Demonstration' and 'Public Assembly' from definitions; Chapter 13.36 (Parades and Public Assemblies), Section 13.36.020 (Permit Required) to add spontaneous event exception; Chapter 13.36 (Parades and Public Assemblies), Section 13.36.100 (Violation - Penalty) to remove the term 'Public Assembly from violations; Chapter 13.38 (Special Events), Section 13.38.020 (Definitions) to remove Picketing, Demonstrating, Parades, and Public Assembly from the definition of 'Special Events;' the penalty as provided in Section 13.36.100 and 13.38.110 of the City Code.	1	13.34.020

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			2 Rpld	13.34.030
			3 Rpld	13.34.050
			4	13.36.010
			5	13.36.020
			6	13.36.100.A.
			7	13.38.020
			8	13.38.030.D.
019410	12- 6-2022	An Ordinance changing the zoning of Lots 25 through 32, Block 15, Highland Park Subdivision, City of El Paso, El Paso County, Texas from R-5 (Residential) to A-O (Apartment/Office). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: South of Detroit Avenue and East of Murchison Drive. Applicant: T.J. Karam, PZRZ22-00028		Omitted
019411	12- 6-2022	An Ordinance changing the zoning of the South 27 feet of Lots 30, 31, and 32, in Block 100, East El Paso, 1112 N. San Marcial Street, City of El Paso, El Paso County, Texas from R-5 (Residential) to G-MU (General Mixed Use), and approving a master zoning plan. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 1112 N. San Marcial Street. Applicant: Buck Money Johnston and Brian Campbell Bosworth, PZRZ22-00022		Omitted
019412	12- 6-2022	An Ordinance terminating the Sign Design non-exclusive franchise for waste containers on sidewalks and other City property.		Omitted
019413	12- 6-2022	An Ordinance granting to Tyler Lyon El Paso Street Ads, LLC a non-exclusive franchise for waste containers on sidewalks and other City property.		Omitted
019414	12- 6-2022	An Ordinance granting to Ruben Torres d/b/a Elite Advertising a non-exclusive franchise for waste containers on sidewalks and other City property.		Omitted
019415	12-13-2022	An Ordinance authorizing the issuance of City of El Paso, Texas, General Obligation Bonds, Series 2023, in one or more series, in an aggregate amount not to exceed $46,100,000; levying a continuing direct annual ad valorem tax for the payment of such Bonds; and resolving other matters which are necessary to effectuate such issuance, including the delegation of matters relating to the sale and issuance of such Bonds to an authorized City official within certain specified parameters.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019416	12-13-2022	An Ordinance granting Special Permit No. PZST21-00013, to allow for parking spaces serving another property and reduction of lot size on the property described as a portion of Tract 1-B-3-A-2, and a portion of Tract 1-U-1, Block 5, Ascarate Grant, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.320 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. The proposed special permit meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 7750 Gateway East Blvd. Applicant: Banes General Contractors, PZST21-00013.		Omitted
019417	12-13-2022	An Ordinance changing the zoning of Lot 2, Block 1, Jeff's Subdivision, 8835 Neptune Street, City of El Paso, El Paso County, Texas from R-4 (Residential) to A-2 (Apartment). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 8835 Neptune Street. Applicant: George R. and Avaavau T. Buckingham - PZRZ22-00029		Omitted
019418	12-13-2022	An Ordinance changing the zoning of Tracts 1, 7A, 19A, and portions of Tracts 11,12,13,14,15,16, and 17, Block 53, Ysleta Grant and portions of Tracts 12A, 13A, 14B, and 15A, Socorro Grant Block 24, 10001 Southside Road, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) to M-2 (Heavy Manufacturing). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 10001 Southside Road. Applicant: El Paso Water - PZRZ22-00031		Omitted
019419	12-13-2022	An Ordinance changing the zoning of the south 60 feet of tract 187 and the south 60 feet of the east 90 feet of tract 188, map of Sunrise Acres, City of El Paso, El Paso County, Texas from R-4 (Residential) and C-2 (Commercial) to C-3 (Commercial) and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 8641 Gateway South Boulevard. Applicant: R-Avilo, LLC PZRZ22-00019		Omitted
019420	12-13-2022	An Ordinance amending Title 2 (Administration and Personnel), Chapter 2.64 (City Employees' Pension Fund), Section 2.64.190 (Contributions), subsection (a) of the El Paso City Code, to allow the City to make the required employee participant contributions on behalf of the City Manager as agreed to by contract.	1	2.64.190.A.
019421	12-23-2022	An emergency ordinance 019421 extending a disaster declaration due to a Humanitarian, security, and economic crisis resulting from a mass migration through El Paso.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019422	1- 3-2023	an Emergency Ordinance 019333 re-enactment authorizing the City Manager to assign personnel and resources to assist in addressing the humanitarian and public safety crisis resulting from mass migration through El Paso.		Omitted
019423	1- 3-2023	an Emergency Ordinance re-enacting Emergency Ordinance No. 019035 extending a Disaster Declaration due to a Public Health Emergency.		Omitted
019424	1- 3-2023	An Emergency Ordinance re-enacting Emergency Ordinance No. 019036 instituting emergency measures, as re-enacted, restated, and amended by Emergency Ordinance No. 019151; and further re-enacted and amended by Emergency Ordinance Nos. 019156, 019169, 019191, and 019284; penalty as provided in Section 8.		Omitted
019425	1- 3-2023	an Emergency Ordinance re-enacting Emergency Ordinance No. 019241; allowing temporary uses on the public right of way and private property by suspending various city ordinances; Penalty as provided in Section 6.		Omitted
019426	1- 3-2023	An Ordinance granting a Franchise for South Texas Ambulance Response Inc., d/b/a Revive Mobile Health, to operate a non-emergency ambulance transfer service.		Omitted
019427	1- 3-2023	An Ordinance vacating a portion of Oregon Street located between Block 5 and Block 6, Mills Addition, City of El Paso, El Paso County, Texas.		Omitted
019428	1-30-2023	Discussion and action on an Emergency Ordinance re-enacting Emergency Ordinance No. 019035 extending a Disaster Declaration due to a Public Health Emergency.		Omitted
019429	1-30-2023	An Emergency Ordinance re-enacting Emergency Ordinance No. 019036 instituting emergency measures, as re-enacted, restated, and amended by Emergency Ordinance No. 019151; and further re-enacted and amended by Emergency Ordinance Nos. 019156, 019169, 019191, and 019284; penalty as provided in Section 8.		Omitted
019430	1-30-2023	an Emergency Ordinance re-enacting Emergency Ordinance No. 019241; allowing temporary uses on the public right of way and private property by suspending various city ordinances; Penalty as provided in Section 6.		Omitted
019431	1-30-2023	an Emergency Ordinance 019333 re-enactment authorizing the City Manager to assign personnel and resources to assist in addressing the humanitarian and public safety crisis resulting from mass migration through El Paso.		Omitted
019432	1-31-2023	An Ordinance granting a Special Privilege License to the County of El Paso for the construction, installation, maintenance, use and repair of 540 linear feet of all necessary, desirable, subsurface wires, cables, underground conduit, manholes or other structures and appurtenances in connection with telecommunication systems and fiber optic, conduit and cables within a portion of City right-of-way underneath Campbell Street and First Avenue; setting the license term for a term of five (5) years with two (2) renewable five (5) year terms. Location: generally, along a portion of First Avenue and Campbell Street. Applicant: County of El Paso, PSPN22-00007		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019433	1-31-2023	An Ordinance amending Title 15 (Public Services), Chapter 15.08 (Street Rentals), Section 15.08.150 (Shared Mobility Devices), to extend the pilot program sixty (60) days. The penalty is as provided in Section 15.08.150 of the El Paso City Code.	1	15.08.150C
019434	1-31-2023	An Ordinance vacating a portion of Allegheny Drive Rights-of-way (54 feet wide) adjacent to Lots 3 and 4, Block 1B and Lot 4, Block 1C, El Paso International Airport Tracts Unit Six Replat, City of El Paso, El Paso County, Texas. Applicant: El Paso International Airport - City of El Paso, SURW22-00012		Omitted
019435	2- 7-2023	An Ordinance amending Title 15, (Public Services), Chapter 15.08 (Street Rentals), Section 15. 08.160 (Mobile Billboards) of the El Paso City Code to extend the current permitting pilot program by one year. The penalty is as provided for in Section 15.08.160 of the El Paso City Code.	1	15.08.160C
019436	2- 7-2023	An Ordinance of the City Council of the City of El Paso, Texas, ordering a Special Election for the submission of Charter Amendments to Section 3.1 to allow District Representatives to appoint and remove District Office Staff; 3.18 to allow City Council to authorize leases for 40 years or less by Resolution or Ordinance; Section 3.5A to allow Council to reschedule meetings for holidays and allow the Mayor to cancel a Council meeting if required due to Declared Emergency; Section 3.9B, 3.10B, and 6.1-12 to align to State law and update obsolete references; Section 3.11 to remove the requirement for a second petition in initiatives, and provide a procedure for citizens to Initiate City Ordinances; Section 6.1-4 to authorize the City to create a policy regarding membership on the Civil Service Commission to reflect the community and City Workforce; Section 6.7-1 and 6.8-1 to allow the City to establish more flexible policies in hiring employees; Section 6.13-11D to establish the City contribution to the Police and Fire Pension Fund of no less than 18% of the wages of the participants, and remove the limit on the City's contribution; Section 3.20B to change the reporting structure for the Chief Internal Auditor to report directly to City Council; such election to be held within the City, on May 6, 2023; making provisions for the conduct of the election; and authorizing a contract with El Paso County to furnish election services and equipment; providing for severability and setting an effective date.		Omitted
019437	2- 7-2023	An Ordinance of the City Council of the City of El Paso, Texas, ordering a Special Election for the submission of Charter Amendments listed in the petition received pursuant to Texas Local Government Code Section 9.004 to create Article IX (Climate Policy) Sections 9.1 (Climate Policy); 9.2 (Definitions); 9.3 (Climate Director); 9.4 (Climate Department); 9.5 (Climate Impact of City Decisions); 9.6 (Tracking Climate Emissions); 9.7 (Climate Jobs); 9.8 (Solar Energy); 9.9 (Renewable Energy Goals); 9.10 (Municipalization of El Paso Electric); 9.11 (Climate Disaster Mitigation, Preparedness and Response); 9.12 (Water Conservation); 9.13 (Elimination of Impediments to Renewable Energy); 9.14 (Climate Commission); 9.16 (Severability).		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019438	2-27-2023	Discussion and action on an Emergency Ordinance re-enacting Emergency Ordinance No. 019035 extending a Disaster Declaration due to a Public Health Emergency.		Omitted
019439	2-27-2023	An Emergency Ordinance re-enacting Emergency Ordinance No. 019036 instituting emergency measures, as re-enacted, restated, and amended by Emergency Ordinance No. 019151; and further re-enacted and amended by Emergency Ordinance Nos. 019156, 019169, 019191, and 019284; penalty as provided in Section 8.		Omitted
019440	2-27-2023	An Emergency Ordinance re-enacting Emergency Ordinance No. 019241; allowing temporary uses on the public right of way and private property by suspending various city ordinances; Penalty as provided in Section 6.		Omitted
019441	2-28-2023	An Emergency Ordinance 019333 re-enactment authorizing the City Manager to assign personnel and resources to assist in addressing the humanitarian and public safety crisis resulting from mass migration through El Paso.		Omitted
019442	2-28-2023	An Ordinance approving a Special Permit to allow for infill development with reduced average lot width for a duplex on the property described as being all of Lot 4, Block 1, Sunrise Acres No. 2 Replat D, 7833 Mount Latona Drive, City of El Paso, El Paso County, Texas. Pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed special permit meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 7833 Mount Latona Dr. Applicant: Pedro and Francisca Morales, PZST21-00014		Omitted
019443	3-14-2023	An Ordinance amending Title 9 (Health and Safety), Chapter 9.48 (Public Swimming Pools and Spas), Section 9.48.010 (Purpose) of the El Paso City Code.	1	9.48.010
019444	3-14-2023	An Ordinance granting to Jessica Soto Prado and Hugo Prado DBA PS Ads a non-exclusive franchise for waste containers on sidewalks and other city property.		Omitted
019445	3-27-2023	Discussion and action on an Emergency Ordinance re-enacting Emergency Ordinance No. 019035 extending a Disaster Declaration due to a Public Health Emergency.		Omitted
019446	3-27-2023	An Emergency Ordinance re-enacting Emergency Ordinance No. 019036 instituting emergency measures, as re-enacted, restated, and amended by Emergency Ordinance No. 019151; and further re-enacted and amended by Emergency Ordinance Nos. 019156, 019169, 019191, and 019284; penalty as provided in Section 8.		Omitted
019447	3-27-2023	Discussion and action on an Emergency Ordinance re-enacting Emergency Ordinance No. 019241; allowing temporary uses on the public right of way and private property by suspending various city ordinances; Penalty as provided in Section 6.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019448	3-27-2023	Discussion and action on an Emergency Ordinance 019333 re-enactment authorizing the City Manager to assign personnel and resources to assist in addressing the humanitarian and public safety crisis resulting from mass migration through El Paso.		Omitted
019449	3-28-2023	An Ordinance approving an amendment to the Project Plan and Reinvestment Zone Financing Plan for Tax Increment Reinvestment Zone Number Five, City of El Paso, Texas, to allocate up to Fifty Thousand Dollars of the Tax Increment Reinvestment Zone annual revenue to the Downtown Plan Alley Activation effort to support improvements to Henry Trost Court; to allocate up to Eight Hundred Thirty Thousand Dollars of the Tax Increment Reinvestment Zone annual revenue to the Downtown Street Tree Master Plan effort to support improvements to West Main Drive between North Santa Fe Street and North El Paso Street; adopting said amendments as required by Section 311.011(e) Texas Tax Code.		Omitted
019450	3-28-2023	An Ordinance vacating a portion of Marks Street right-of-way and a portion of Herbert Street right-of-way within the Franklin D. Roosevelt Subdivision, City of El Paso, El Paso County, Texas. Applicant: Housing Opportunity Management Enterprises (HOME) - City of El Paso, SURW22-00008		Omitted
019451	3-28-2023	An Ordinance amending Title 15 (Public Services), Chapter 15.08 (Street Rentals), Section 15.08.150 (Shared Mobility Devices), to make the current permitting program permanent. The penalty is as provided in Section 15.08.150 of the El Paso City Code.	1	15.08.150C
019452	3-28-2023	An Ordinance amending Title 7 (Animals), Chapter 7.28 (Animal Shelter Advisory Committee), Section 7.28.050 (Quorum and Procedures) of the El Paso Code. The City of El Paso wishes to re-insert a previously inadvertently deleted section in Title 7, Chapter 28, Section 7.28.050.	1	7.28.050B
019453	4-11-2023	An Ordinance authorizing the issuance of City of El Paso, Texas, General Obligation Refunding Bonds, Series 2023A for debt service savings; levying a continuing direct annual ad valorem tax for the payment of such Bonds; and resolving other matters which are necessary to effectuate such issuance; including the delegation of matters relating to the sale and issuance of such Bonds to an authorized City official within certain specified parameters.		Omitted
019454	4-11-2023	An Ordinance approving the issuance of the City of El Paso Downtown Development Corporation Special Revenue Refunding Bonds, Series 2023 (Downtown Ballpark Venue Project), approving a Fourth Amendment to Master Lease Agreement related to such refunding bonds and approving other matters incident and related thereto.		Omitted
019455	4-11-2023	An Ordinance approving the issuance of the City of El Paso Downtown Development Corporation Special Revenue Refunding Bonds, Series 2023A (Downtown Ballpark Venue Project), approving a Fifth Amendment to Master Lease Agreement related to such refunding bonds and approving other matters incident and related thereto.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019456	4-11-2023	An Ordinance authorizing the City Manager to sign a Purchase and Sale Agreement, a Deed and any other documents necessary to convey approximately 0.0427 acres of land being described as a portion of Tract A, Block 5, Coronado Country Club Estates, an addition to the City of El Paso, El Paso County, Texas.		Omitted
019457	4-11-2023	An Ordinance authorizing the City Manager to sign a Purchase and Sale Agreement, a Deed and any other documents necessary to convey approximately 1.289 acres of land being described as portion of Tract 4A and approximately 3.673 acres of land being all of Tract 4A2, Block 24, Socorro Grant, City of El Paso, El Paso County, Texas.		Omitted
019458	4-11-2023	An Ordinance authorizing the City Manager to sign a Purchase and Sale Agreement, a Deed and any other documents necessary to convey approximately 0.383 acres of land being described as a portion of Lots 1, 2, and 3, Block 2, Kessler Industrial District Unit 1, City of El Paso, El Paso County, Texas.		Omitted
019459	4-11-2023	An Ordinance changing the zoning for the property described as Lot 135, Sunrise Acres #2, 4645 Vulcan Avenue, City of El Paso, El Paso County, Texas from R-4 (Residential) to A-O (Apartment/Office) and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 4645 Vulcan Avenue. Applicant: Aguilar Pedro M. & Morales Francisca, PZRZ22-00023		Omitted
019460	4-11-2023	An Ordinance authorizing the conveyance of real property owned by the City of El Paso to TEXAS TECH UNIVERSITY HEALTH SCIENCES CENTER AT EL PASO for the purchase price of $185,000, such real property legally described as lots 6, 7, 8, 9 and 10, block 1, HADLOCK'S SUBURBAN GARDENS, an addition to the City of El Paso, El Paso County, Texas, according to the plat thereof on file in volume 12, page 20, real property records, El Paso County, Texas.		Omitted
019461	4-11-2023	An Ordinance authorizing the conveyance of real property owned by the City of El Paso to TEXAS TECH UNIVERSITY HEALTH SCIENCES CENTER AT EL PASO for the purchase price of $8,300,000, such real property legally described as tracts 26A, 26B, 26B2, 26C, 27A, 27A1 and 27A2, Elijah Bennett survey No. 11, in the City of El Paso, El Paso County, Texas, according to the resurvey of said Elijah Bennett survey No. 11 made by El Paso County, Texas.		Omitted
019462	4-11-2023	An Ordinance authorizing the conveyance of real property owned by the City of El Paso to TEXAS TECH UNIVERSITY HEALTH SCIENCES CENTER AT EL PASO for the purchase price of $90,000, such real property legally described as Lots 42 and 43, Block 2, HADLOCK'S SUBURBAN GARDENS, an addition to the City of El Paso, El Paso County, Texas, according to the plat thereof on file in volume 12, page 20, real property records, El Paso County, Texas.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019463	4-11-2023	An Ordinance authorizing the conveyance of real property owned by the City of El Paso to TEXAS TECH UNIVERSITY HEALTH SCIENCES CENTER AT EL PASO for the purchase price of $90,000. Such real property legally described as Lots 46 and 47, Block 2, HADLOCK'S SUBURBAN GARDENS, in addition to the City of EL Paso, El Paso County, Texas, according to the plat thereof on file in volume 12, page 20, real property records, El Paso County, Texas.		Omitted
019464	4-11-2023	An Ordinance authorizing the conveyance of real property owned by the City of El Paso to TEXAS TECH UNIVERSITY HEALTH SCIENCES CENTER AT EL PASO for the purchase price of $63,000, such real property legally described as Lots 26, 27, 28 and the south 2 feet of Lot 29, Block 2, HADLOCK'S SUBURBAN GARDENS, an addition to the City of El Paso, El Paso County, Texas, according to the plat thereof on file in volume 12, page 20, real property records, El Paso County, Texas.		Omitted
019465	4-11-2023	An Ordinance authorizing the conveyance of real property owned by the City of El Paso to TEXAS TECH UNIVERSITY HEALTH SCIENCES CENTER AT EL PASO for the purchase price of $45,000, such real property legally described as Lot 19, Block 1, HADLOCK'S SUBURBAN GARDENS, an addition to the City of El Paso, El Paso County, Texas, according to the plat thereof on file in volume 12, page 20, real property records, El Paso County, Texas.		Omitted
019466	4-11-2023	An Ordinance authorizing the conveyance of real property owned by the City of El Paso to TEXAS TECH UNIVERSITY HEALTH SCIENCES CENTER AT EL PASO for the purchase price of $45,000, such real property legally described as Lot 18, Block 1, HADLOCK'S SUBURBAN GARDENS, an addition to the City of El Paso, El Paso County, Texas, according to the plat thereof on file in volume 12, page 20, real property records, El Paso County, Texas.		Omitted
019467	4-11-2023	An Ordinance authorizing the conveyance of real property owned by the City of El Paso to TEXAS TECH UNIVERSITY HEALTH SCIENCES CENTER AT EL PASO for the purchase price of $90,000, such real property legally described as Lots 16 and 17, Block 1, HADLOCK'S SUBURBAN GARDENS, an addition to the City of El Paso, El Paso County, Texas, according to the plat thereof on file in Volume 12, Page 20, real property records, El Paso County, Texas.		Omitted
019468	4-11-2023	An Ordinance authorizing the conveyance of real property owned by the City of El Paso to TEXAS TECH UNIVERSITY HEALTH SCIENCES CENTER AT EL PASO for the purchase price of $45,000, such real property legally described as Lot 15, Block 1, HADLOCK'S SUBURBAN GARDENS, an addition to the City of El Paso, El Paso County, Texas, according to the plat thereof on file in Volume 12, Page 20, real property records, El Paso County, Texas.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019469	4-11-2023	An Ordinance authorizing the conveyance of real property owned by the City of El Paso to TEXAS TECH UNIVERSITY HEALTH SCIENCES CENTER AT EL PASO for the purchase price of $45,000, such real property legally described as Lot 14, Block 1, HADLOCK'S SUBURBAN GARDENS, an addition to the City of El Paso, El Paso County, Texas, according to the plat thereof on file in volume 12, page 20, real property records, El Paso County, Texas.		Omitted
019470	4-11-2023	An Ordinance authorizing the conveyance of real property owned by the City of EL Paso to TEXAS TECH UNIVERSITY HEALTH SCIENCES CENTER AT EL PASO for the purchase price of $45,000, such real property legally described as Lot 13, Block 1, HADLOCK'S SUBURBAN GARDENS, an addition to the City of El Paso, El Paso County, Texas, according to the plat thereof on file in Volume 12, Page 20, real property records, El Paso County, Texas.		Omitted
019471	4-11-2023	An Ordinance authorizing the conveyance of real property owned by the City of El Paso to TEXAS TECH UNIVERSITY HEALTH SCIENCES CENTER AT EL PASO for the purchase price of $90,000, such real property legally described as Lots 11 and 12, Block 1, HADLOCK'S SUBURBAN GARDENS, an addition to the City of El Paso, El Paso County, Texas, according to the plat thereof on file in Volume 12, Page 20, real property records, El Paso County, Texas.		Omitted
019472	4-11-2023	An Ordinance authorizing the conveyance of real property owned by the City of El Paso to TEXAS TECH UNIVERSITY HEALTH SCIENCES CENTER AT EL PASO for the purchase price of $95,000, such real property legally described as Lots 1 and 2, Block 1, HADLOCK'S SUBURBAN GARDENS, an addition to the City of El Paso, El Paso County, Texas, according to the plat thereof on file in Volume 12, Page 20, real property records, El Paso County, Texas.		Omitted
019473	4-11-2023	An Ordinance authorizing the conveyance of real property owned by the City of El Paso to TEXAS TECH UNIVERSITY HEALTH SCIENCES CENTER AT EL PASO for the purchase price of $90,000, such real property legally described as Lots 20 and 21, Block 1, HADLOCK'S SUBURBAN GARDENS, an addition to the City of El Paso, El Paso, County, Texas, according to the plat thereof on file in Volume 12, Page 20, real property records, El Paso County, Texas.		Omitted
019474	4-11-2023	An Ordinance authorizing the conveyance of real property owned by the City of EL Paso to TEXAS TECH UNIVERSITY HEALTH SCIENCES CENTER AT EL PASO for the purchase price of $90,000, such real property legally described as Lots 26 and 27, Block 1, HADLOCK'S SUBURBAN GARDENS, an addition to the City of EL Paso, El Paso County, Texas, according to the plat thereof on file in Volume 12, Page 20, real property records, El Paso County, Texas.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019475	4-24-2023	An Emergency Ordinance re-enacting Emergency Ordinance No. 019035 extending a Disaster Declaration due to a Public Health Emergency.		Omitted
019476	4-24-2023	An Emergency Ordinance re-enacting Emergency Ordinance No. 019036 instituting emergency measures, as re-enacted, restated, and amended by Emergency Ordinance No. 019151; and further re-enacted and amended by Emergency Ordinance Nos. 019156, 019169, 019191, and 019284; penalty as provided in Section 8.		Omitted
019477	4-24-2023	An Emergency Ordinance re-enacting Emergency Ordinance No. 019241; allowing temporary uses on the public right of way and private property by suspending various city ordinances; Penalty as provided in Section 6.		Omitted
019478	4-24-2023	An Emergency Ordinance 019333 re-enactment authorizing the City Manager to assign personnel and resources to assist in addressing the humanitarian and public safety crisis resulting from mass migration through El Paso.		Omitted
019479	4-25-2023	An Ordinance authorizing the issuance of City of El Paso, Texas, Water and Sewer Revenue Bonds in an aggregate amount not to exceed $192,215,000 for system improvements and to refund certain obligations issued for system improvements; and resolving matters which are necessary to effect such issuance, including the delegation of matters relating to the sale and issuance of the bonds to an authorized City officer or employee within certain specified parameters.		Omitted
019480	4-25-2023	An Ordinance authorizing the issuance of "City of El Paso, Texas, Municipal Drainage Utility System Revenue Refunding Bonds, Series 2023" in an amount not to exceed $25,330,000 to refund certain previously issued obligations of the City; and resolving matters which are necessary to effect such issuance, including the delegation of matters relating to the sale and issuance of the bonds to an authorized City officer or employee within certain specified parameters.		Omitted
019481	4-25-2023	An Ordinance granting Special Permit No. PZST22-00009, to allow for a governmental use, building on the property described as Lot 1, Block 47, Pebble Hills Unit 4 Replat, 10832 Ivanhoe Drive, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.260 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. The proposed special permit meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 10832 Ivanhoe Drive. Applicant: Brad Thompson - Capital Improvement Department, City of El Paso, PZST22-00009		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019482	4-25-2023	An Ordinance changing the zoning of Lots 9, 10, and 11, Block 3, Hughes Subdivision, 5649 Beacon Avenue, City of El Paso, El Paso County, Texas from M-1 (Light Manufacturing) to A-O (Apartment/Office). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 5649 Beacon Avenue. Applicant: Brian Eduardo Acosta Gonzalez, PZRZ21-00028		Omitted
019483	4-25-2023	An Ordinance changing the zoning of the property described as a portion of Blocks 7, 10, 11, 14, Alleys, Grandview Avenue and closed Streets Highland Park Addition, 1901 Grandview Avenue, City of El Paso, El Paso County, Texas from R-5 (Residential) and C-1/c (Commercial/condition) to S-D/c (Special Development/conditions), Pursuant to Section 20.04.360, imposing conditions, and approving a Detailed Site Development Plan pursuant to Section 20.04.150 and 20.10.360 of the El Paso City Code to allow for a medical office and front, rear, side, and side street yard setback reductions as permitted in the S-D (Special Development) zone district. The penalty is as provided for in chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 1901 Grandview Avenue. Applicant: Physician Reliance, LLC. - PZRZ22-00032		Omitted
019484	4-25-2023	An Ordinance changing the zoning of the West Twenty Feet of Lot 19, and all of Lots 20 through 23, Block 64, Cotton Addition, 1820 Myrtle Avenue, City of El Paso, El Paso County, Texas from M-1 (Light Manufacturing) to G-MU (General Mixed Use) and approving a Master Zoning Plan with reduction to minimum district area required and 100% parking reduction. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 1820 Myrtle Avenue. Applicant: L & T 1820, LLC. - PZRZ22-00033		Omitted
019485	5- 8-2023	An emergency ordinance extending a disaster declaration due to a humanitarian, security, and economic crisis resulting from a mass migration through El Paso.		Omitted
019486	5- 9-2023	An Ordinance establishing a municipal drainage utility system extendable commercial paper program and authorizing the issuance of program obligations in an aggregate principal amount not to exceed $60,000,000 outstanding at any one time, prescribing the terms, features and characteristics of such obligations; making certain covenants and agreements in connection therewith; providing for the payment of the obligations; resolving other matters related thereto, including approval of a dealer agreement and issuing and paying agent agreement; and providing an effective date.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019487	5- 9-2023	An Ordinance authorizing the issuance of City of El Paso, Texas, Municipal Drainage Utility System Revenue Refunding Bonds in an amount not to exceed $61,200,000 to refund certain extendable commercial paper obligations of the City; and resolving matters which are necessary to effect such issuance, including the delegation of matters relating to the sale and issuance of the bonds to an authorized City officer or employee within certain specified parameters.		Omitted
019488	5- 9-2023	An Ordinance granting Elite Medical Transport of Texas, LLC., a franchise extension and amending Ordinance No. 019172 to modify its franchise rate, and to operate a non-emergency ambulance transfer service.		Omitted
019489	5- 9-2023	An Ordinance granting Dominion Ambulance, LLC., a franchise extension and amending Ordinance No. 019171 to modify its franchise rate, and to operate a non-emergency ambulance transfer service.		Omitted
019490	5- 9-2023	An Ordinance granting South Texas Ambulance Response, Inc., D/B/A Revive Mobile Health, a franchise extension and amending Ordinance No. 019426 to modify its franchise rate, and to operate a non-emergency ambulance transfer service.		Omitted
019491	5- 9-2023	An Ordinance granting Life Ambulance Service, Inc. a franchise extension and amending Ordinance No. 019173 to modify its franchise rate, and to operate a non-emergency ambulance transfer service.		Omitted
019492	5- 9-2023	An Ordinance changing the zoning of Tract 13, Block 49, Ysleta Grant, 246 Southside Road, City of El Paso, El Paso County, Texas from R-F/H (Ranch and Farm/Historic) to R-4/H (Residential/Historic). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 246 Southside Road. Applicant: Casas Genesis LLC, PZRZ22-00039		Omitted
019493	5- 9-2023	An Ordinance changing the zoning for the property described as the South ½ of Tracts 64 and 65 and all of Tracts 66, 67, 68, 69, 70, 71, 72, 73, 74, and 75, First Supplemental Map of Parkland Addition, 10202 Dyer Street, 10266 Dyer Street, and 10288 Dyer Street, City of El Paso, El Paso County, Texas from C-3 (Commercial) and C-3/sc (Commercial/special contract) to C-4 (Commercial) and C-4/sc (Commercial/special contract), and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 10202 Dyer Street, 10266 Dyer Street, and 10288 Dyer Street. Applicant: Atiyah Talal, Donna L. Green, and Cesar A. Lopez, PZRZ22-00038		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019494	5- 9-2023	An Ordinance granting Special Permit No. PZST22-00014, to allow for an infill development with reductions to average lot width, front and side yard setbacks, and a 75% parking reduction on the property described as Lot 17, Block 36, Magoffin, 916 South St. Vrain Street, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. The proposed special permit meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 916 South St. Vrain Street. Applicant: Norma Judith Arrunada, PZST22-00014		Omitted
019495	5- 9-2023	An Ordinance granting Special Permit No. PZST23-00001, to allow for Infill Development with a reduction in lot area, average lot width, rear yard setback, and cumulative front and rear yard setback on the property described as Lot 33, Howell Subdivision, 5833 Macias Street, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. The proposed special permit meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 5833 Macias Street. Applicant: Enrique Ayala, PZST23-00001		Omitted
019496	5- 9-2023	An Ordinance granting Special Permit No. PZST22-00013, to allow for infill development with reductions to average lot width, front and side yard setbacks, and a 75% parking reduction on the property described as Lot 14, Block 47, Magoffin, 708 South St. Vrain Street, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. The proposed special permit meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 708 South St. Vrain St. Applicant: Norma Judith Arrunada, PZST22-00013		Omitted
019497	5-22-2023	An Emergency Ordinance 019333 re-enactment authorizing the City Manager to assign personnel and resources to assist in addressing the humanitarian and public safety crisis resulting from mass migration through El Paso.		Omitted
019498	5-22-2023	An emergency ordinance extending emergency ordinance no. 019485 due to a humanitarian, security, and economic crisis resulting from a mass migration through El Paso.		Omitted
019499	5-23-2023	An Ordinance authorizing the City Manager to sign a Purchase and Sale Agreement, a Deed and any other documents necessary to convey to Casas Genesis, LLC, approximately 0.1303 acres of land legally described as a Lot 3, Block 5, Mesquite Trails #2, an addition to the City of El Paso, El Paso County, Texas.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019500	5-23-2023	An Ordinance authorizing the City Manager to sign a Purchase and Sale Agreement, a Deed, and any other documents necessary to convey to Phillip & Henry, LLC., approximately 0.222 acres of land legally described as Lot 52-A, Block 14, Shearman Unit Four Replat A, City of El Paso, El Paso County, Texas.		Omitted
019501	5-23-2023	An Ordinance authorizing the City Manager to sign a Purchase and Sale Agreement, a Deed and any other documents necessary to convey to Rene Alejandro Saenz and Cynthia Ann Saenz, approximately 0.147 acres of land legally described as Tract 25-C and Tract 25-B-1, Block 17, Upper Valley Surveys in El Paso County, Texas.		Omitted
019502	5-23-2023	An Ordinance authorizing the City Manager to sign a Purchase and Sale Agreement, a Deed and any other documents necessary to convey to Punta de Agua, LLC., approximately 0.1628 acres of land, legally described as Lot 2, Less NE portion of Block 4, Pecan Grove Subdivision, an addition to City of El Paso, El Paso County, Texas.		Omitted
019503	5-23-2023	An Ordinance authorizing the City Manager to sign a Purchase and Sale Agreement, a Deed and any other documents necessary to convey to Casas Genesis, LLC., approximately 0.12 acres of land legally described as Lot 1, Block 22, Paseos del Sol Unit Two Amending Plat, City of El Paso, El Paso County, Texas.		Omitted
019504	5-23-2023	An Ordinance authorizing the City Manager to sign a Purchase and Sale Agreement, a Deed and any other documents necessary to convey to Marco Maldonado, approximately 0.025 acres of land legally described as a Lot 25, Block 3, Colonia Miramonte Addition Unit One, City of El Paso, El Paso County, Texas.		Omitted
019505	5-23-2023	An Ordinance authorizing the City Manager to sign a Purchase and Sale Agreement, a Deed and any other documents necessary to convey to Terry Taylor and Susan K. Taylor, approximately 49.156 acres of land legally described as within Section 28, Township 15 South, Range 5 West, New Mexico Principal Meridian, Sierra County, New Mexico.		Omitted
019506	5-23-2023	An Ordinance vacating a 0.081 acre portion of Oregon Street right-of-way, located within Alexander Addition, City of El Paso, El Paso County, Texas. Subject Property: Oregon Street. Applicant: University of Texas at El Paso, SURW22-00010		Omitted
019507	5-23-2023	An Ordinance, amend Title 12, Chapter 12.88 (Schedules), Section 12.88.150 (Schedule XIV - Speed limits), to amend Paragraph E (Thirty miles per hour) by adding item 5 Desert Pass St. from S. Resler Dr. to a point 300 feet past Desert Trail Dr.; the penalty being provided in Chapter 12.84 of the El Paso City Code.		

Ordinance Number	Approval Date	Description	Section	Section this Code
019508	5-23-2022	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.150 (Schedule XIV-Speed Limits), to amend Paragraph G (forty miles per hour); and to amend Paragraph F (thirty-five miles per hour) by adding 107. Socorro Drive (FM 258) between a point 400 feet southeast of Southside Road and the southeast city limits; the penalty being provided in Chapter 12.84 of the El Paso City Code.		
019509	6- 6-2023	An Ordinance of the City Council of the City of El Paso, Texas, amending Ordinance No. 018749 concerning Tax Increment Reinvestment Zone Number Ten, City of El Paso, Texas, established pursuant to Chapter 311 of the Texas Tax Code, by reducing the boundaries of Tax Increment Reinvestment Zone Number Ten, City of El Paso, Texas.		Omitted
019510	6- 6-2023	An Ordinance changing the zoning for the property described as a portion of Block 3, Weiner Sunset Tracts Unit 2, Lot 2 & the entirety of J M Jett Survey 155 Abstract 48 Tracts 14-B and 8, A F Miller Survey 210 Abstract 3594 Tracts 11 and 12-B, 201 E. Sunset Road, City of El Paso, El Paso County, Texas from R-4 (Residential) to C-4 (Commercial), and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 201 E. Sunset Road. Applicant: GRV Integrated Engineering Solutions, PZRZ22-00037		Omitted
019511	6- 6-2023	An Ordinance changing the zoning of Lot 1, Block 1, Tower Subdivision, 1271 Tower Trail Lane, City of El Paso, El Paso County, Texas from M-1 (Light Manufacturing) to C-3 (Commercial), and imposing conditions. The penalty is as provided for in chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 1271 Tower Trail Lane. Applicant: Mostly Done, Inc., PZRZ23-00006		Omitted
019512	6- 6-2023	An Ordinance changing the zoning of Lots 1 thru 10, Block 44, Harts Survey No. 9, 901 North Stanton Street, City of El Paso, El Paso County, Texas from A-2 (Apartment) and C-4 (Commercial) to G-MU (General Mixed Use) and approving a master zoning plan. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 901 N. Stanton St. Applicant: EP RMA Investments, LLC, PZRZ22-00034		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019513	6- 6-2023	An Ordinance changing the zoning of the North ½ of Tract 23 and the South 25 feet of Tract 24, Crossroads Subdivision, 5037 Crossroads Drive, City of El Paso, El Paso County, Texas from R-5 (Residential) to A-O (Apartment/Office). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 5037 Crossroads Drive. Applicant: Paar Partners LLC, PZRZ23-00007		Omitted
019514	6- 6-2023	An Ordinance vacating a 53 square-foot public utility easement, located within Lot 3, Block 10, Rio Valley Subdivision Replat A, City of El Paso, El Paso County, Texas. Subject Property: 6524 Ta Suil Pl. Applicant: El Paso Accent Homes, LLC, SUET22-00007		Omitted
019515	6-20-2023	An Emergency Ordinance 019333 re-enactment authorizing the City Manager to assign personnel and resources to assist in addressing the humanitarian and public safety crisis resulting from mass migration through El Paso.		Omitted
019516	6-20-2023	An emergency ordinance extending emergency ordinance no. 019485 due to a humanitarian, security, and economic crisis resulting from a mass migration through El Paso.		Omitted
019517	6-20-2023	An Ordinance amending Title 20 (Zoning), Chapter 20.02 (General Provisions and Definitions), Article II (Definitions); Title 20 (Zoning), Chapter 20.16 (Screening and Fencing), 20.16.030 (Permitted Walls), Subsection B; Title 20 (Zoning), Appendix A (Table of Permissible Uses), Table 4.00 (Office & Research Services); Title 20 (Zoning), Appendix A (Table of Permissible Uses), Table 5.00 (Manufacturing, Processing & Assembling); Title 20 (Zoning), Appendix A (Table of Permissible Uses), Table 11.00 (Recreation, Amusement & Entertainment); Title 20 (Zoning), Appendix C (Table of Parking Requirements and Standards), Table 4.00 (Office & Research Services); Title 20 (Zoning), Appendix C (Table of Parking Requirements and Standards) of the El Paso City Code to establish definitions for uses; clarify requirements; update the table of permissible uses; update the table of parking requirements and standards.	1 Added	20.02.109,
				20.02.148.1, 20.02.148.2,
				20.02.288.1,
				20.02.724.1, 20.02.724.2,
				20.02.852.1
			2	20.16.030B
			3 Added	Tit. 20, App. A, 4.055
			4 Rpld	Tit. 20, App. A, 5.10
			5 Added	Tit. 20, App. A, 5.065
			6 Added	Tit. 20, App. A, 5.235
			7	Tit. 20, App. A, 5.24
			8 Added	Tit. 20, App. A, 11.055
			9	Tit. 20, App. C, 4.05

Ordinance Number	Approval Date	Description	Section	Section this Code
			10	Tit. 20, App. C, note
019518	6-20-2023	An Ordinance granting a franchise for Elite Medical Air Transport, LLC d/b/a Emergent Air, to operate a non-emergency ambulance transfer service.		Omitted
019519	6-20-2023	An Ordinance changing the zoning of a portion of Tracts 10E and 11D, Section 36, Block 80, Township 2, Texas and Pacific Railway Surveys and a portion of Lot 1, Block 1, Pars Commercial Village, 11248 and 11254 Montana Avenue and 3667 George Dieter Drive, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) and C-1 (Commercial) to C-3 (Commercial) and from C-4/c (Commercial/conditions) to C-3/c (Commercial/conditions), and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 11248 and 11254 Montana Avenue and 3667 George Dieter Drive. Applicant: Abdolkarim Saadatkhah - PZRZ22-00044		Omitted
019520	6-20-2023	An Ordinance changing the zoning of all Lots 8 thru 10, the Northern 20.73 feet of Lot 7, the Eastern 8.15 feet of Lots 11 thru 13, the East 8.15 feet of the Northern 20.73 feet of Lot 14 and Northern 98.73 of the Alley, Block 199, Campbell's Addition, 222 S. Campbell Street, City of El Paso, El Paso County, Texas from C-4 (Commercial) to C-5 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 222 S. Campbell Street. Applicant: City of El Paso - PZRZ23-00001		Omitted
019521	7- 5-2023	An Ordinance amending Title 9 (Health and Safety), Chapter 9.52 (Fire Prevention Code) of the El Paso City Code to adopt the 2021 Edition of the International Fire Code and to provide for local amendments to the 2021 International Fire Code, the penalty being as provided in Section 9.52.030.12 (Violations Penalties) of the El Paso City Code.	1 Rpld	9.52.010—9.53.220
			Added	9.52.010—9.52.240
019522	7- 5-2023	An Ordinance vacating a portion of City Right-Of-Way over Father Rahm Avenue Right-Of-Way, Sixth Avenue Right-Of-Way, and Ochoa Street Right-Of-Way within Block 81, Campbell Addition, City of El Paso, El Paso County, Texas. Subject Property: 700 S. Ochoa Street. Applicant: Centro De Salud Familiar La Fe, SURW22-00016.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019523	7- 5-2023	ORDINANCE 019523 An Ordinance changing the zoning of the South 200 feet of Lot 33, Map of Sunrise Acres No. 2, 4819 Titanic Avenue, City of El Paso, El Paso County, Texas from R-4 (Residential) to A-2 (Apartment), and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 4819 Titanic Avenue. Applicant: Gisela R. Herrera, PZRZ22-00027.		Omitted
019524	7-17-2023	An emergency ordinance extending Emergency Ordinance No. 019333 authorizing the city manager to assign personnel and resources to assist in addressing the humanitarian and public safety crisis resulting from a mass migration through El Paso.		Omitted
019525	7-17-2023	An emergency ordinance extending Emergency Ordinance No. 019485 due to a humanitarian, security, and economic crisis resulting from a mass migration through El Paso.		Omitted
019526	7-18-2023	An Ordinance changing the zoning of portion of Simeon Hart Survey No. 2 and the south ½ of Lot 2, Old Fort Bliss, 1720 W. Paisano Drive and 1820 W. Paisano Drive, City of El Paso, El Paso County, Texas from M-2/h (Heavy Manufacturing/historic) and M-2 (Heavy Manufacturing) to G-MU/h (General Mixed Use/historic) and G-MU (General Mixed Use), approving a master zoning plan, and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 1720 and 1820 W. Paisano Dr. Applicant: Sami DiPasquale, Abara, Inc., PZRZ23-00005.		Omitted
019527	7-18-2023	An Ordinance changing the zoning of Tract 40, O.A. Danielson Survey No. 310, City of El Paso, El Paso County, Texas from R-3 (Residential) to C-4 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: North of Rojas Drive and East of George Dieter Drive. Applicant: EPX Construction, PZRZ23-00010.		Omitted
019528	8- 1-2023	An Ordinance amending Title 18 (Building and Construction), Chapter 18.02 (Administrative Code), Chapter 18.08 (Building Code), Chapter 18.10 (Residential Code), Chapter 18.12 (Mechanical Code), Chapter 18.16 (Electrical Code), Chapter 18.20 (Plumbing Code), Chapter 18.24 (Gas Code), Chapter 18.28 (Existing Building Code), Chapter 18.30 (Pool and Spa Code), Chapter 18.50 (Property Maintenance Code), Chapter 18.60 (Flood Damage Prevention Code), Chapter 18.70 (Energy Conservation Code), adopting the 2021 International Building Code, and adopting appropriate local amendments, the penalty being as provided in 18.02.115 of the El Paso City Code.	1	18.02.101—18.02.115
			2	18.08.010—18.08.300

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			3	18.10.010—18.10.400
			4	18.12.010—18.12.100
			5	18.16.010—18.16.310
			6	18.20.010—18.20.260
			7	18.24.010—18.24.120
			8	18.28.010—18.28.250
			9	18.30.010—18.30.140
			10	18.50.010—18.50.180
			11	18.60.010—18.60.240
			12	18.70.010—18.70.210
019529	8-14-2023	An emergency ordinance extending Emergency Ordinance No. 019333 authorizing the city manager to assign personnel and resources to assist in addressing the humanitarian and public safety crisis resulting from a mass migration through El Paso.		Omitted
019530	8-14-2023	An emergency ordinance extending Emergency Ordinance No. 019485 due to a humanitarian, security, and economic crisis resulting from a mass migration through El Paso.		Omitted
019531	8-15-2023	Ordinance Levying FY 2023 - 2024 taxes.		Omitted
019532	8-15-2023	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.85 (Parking Violations Bureau), to amend Section 12.85.010 (Parking Violations Bureau Established), Section 12.85.020 (Hearing Officers), Section 12.85.030 (Parking Citations); to update language to current usage; to allow substitute Associate Municipal Judges to serve as Hearing Officers; and to allow Commissioned Officers hired by Independent School Districts within the City limit to issue Parking Citations; The penalty being provided in Chapter 12.84.010 of the El Paso City Code.	1	12.85.010
			2	12.85.020
			3	12.85.030
019534	8-15-2023	An Ordinance authorizing the City Manager to sign a deed and any other documents necessary to convey approximately 37.9194 acres of land situated in portions of sections 21, 28, and 29, Block 80, Township 1, Texas and Pacific Railroad Company Surveys, City of El Paso, El Paso County, Texas.		Omitted
019535	8-29-2023	An Ordinance amending Title 19 (Subdivision and Development Plats) adding Article 8 (Conflict of Laws) Chapter 8.1 (Conflict of Laws) in order to specify that in the event of a conflict between Title 19 (Subdivision and Development Plats) and Chapter 212 of the Texas Local Government Code that Chapter 212 controls.	1	19.65.010
019536	9-12-2023	An emergency ordinance extending Emergency Ordinance No. 019333 authorizing the city manager to assign personnel and resources to assist in addressing the humanitarian and public safety crisis resulting from a mass migration through El Paso.		Omitted
019537	9-12-2023	An emergency ordinance extending Emergency Ordinance No. 019485 due to a humanitarian, security, and economic crisis resulting from a mass migration through El Paso.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019538	9-12-2023	An Ordinance vacating a Ten-Foot and a Five-Foot Public Utility Easement (0.0238 Acres of Land) located within Lot 9, Block 35, West Hills Unit 12, City of El Paso, El Paso County, Texas. Subject Property: 904 Fireside Ln. Applicant: Rosario Olivera, SUET23-00001		Omitted
019539	9-12-2023	An Ordinance granting El Paso Bench Ads, LLC a non-exclusive franchise for waste containers on sidewalks and other City property.		Omitted
019540	9-12-2023	An Ordinance vacating a portion of City right-of-way over a portion of Mobile Street, Map of Westlyn Heights Addition, City of El Paso, El Paso County, Texas. Subject Property: Mobile Street Applicant: El Paso Electric Company, SURW23-00004		Omitted
019541	9-26-2023	An Ordinance amending Title 9 (Health and Safety), Chapter 9.04 (Solid Waste Management) to delete the construction and demolition manifest requirement in section 9.04.280 (Manifest Requirement) and to delete references to the said manifest in sections 9.04.020 (Definitions), 9.04.460 (Hauler Records) and 9.04.480 (Suspension, Revocation of a Hauler Permit; Appeals); the penalty being as provided in Section 9.04.630 of the El Paso City Code.	1	9.04.020.11
			2 Rpld	9.04.280
			3	9.04.460
			4	9.04.480C.1
019542	9-26-2023	An Ordinance vacating a 940 square-foot public utility easement, located within Lot 27, Block 21, Vista Real Unit Two, an addition to the City of El Paso, El Paso County, Texas. Subject Property: 12077 Banner Crest Dr. Applicant: Elia A. Quiroga, SUET23-00002		Omitted
019543	9-26-2023	An Ordinance authorizing the City Manager to execute a quitclaim (tax resale) deed conveying all right, title and interest to Texas Tech University Health Sciences Center, to the following and described parcel: Lot 6, the East part of Lot 5, and part of Lot 7, Block 3, Hadlock's Suburban Gardens, an addition to the City of El Paso, El Paso County, as described in volume 3778 page 352, Official Public Records of Real Property of El Paso County, Texas. in accordance with Section 34.05 (h) of the Tax Code. Section 34.05 (h) permits the City to sell a property for the total amount of the judgment and the sale of the property does not require the consent of each taxing entity entitled to receive proceeds from the sale.		Omitted
019544	10-10-2023	An Emergency Ordinance extending Emergency Ordinance No. 019333 authorizing the city manager to assign personnel and resources to assist in addressing the humanitarian and public safety crisis resulting from a mass migration through El Paso.		Omitted
019545	10-10-2023	An Emergency Ordinance extending Emergency Ordinance No. 019485 due to a humanitarian, security, and economic crisis resulting from a mass migration through El Paso.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019546	10-10-2023	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.78 (International Bridges), Section 12.78.010 (Tolls for International Bridges) to add Description of Buses, Chapter 12.78 (International Bridges), Section 12.78.020 (Toll Collection for Pick Up Trucks) to add Or Any Other Vehicle to the title of Toll Collection for Pick Up Trucks of the City Code.	1	12.78.010
			2	12.78.020C
019547	10-10-2023	An Ordinance terminating the A-1 Outdoor Marketing non-exclusive franchise for waste containers on sidewalks and other City property.		Omitted
019548	10-10-2023	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.150 (Schedule XIV-Speed Limits), to amend Paragraph H (Forty Five Miles Per Hour) Item 19. Upper Valley Road between Country Club Road and Borderland Road, be DELETED; and to amend Paragraph (Forty Five Miles Per Hour) Item 30. Westside Drive between Country Club Road and Borderland Road, be DELETED; and to amend Paragraph F (Thirty Five Miles Per Hour) to ADD Item 107. Upper Valley Road between Country Club Road and Borderland Road; and to amend Paragraph F (Thirty Five Miles Per Hour) to ADD Item 108. Westside Drive between Country Club Road and Borderland Road; the penalty being provided in Chapter 12.84 of the El Paso City Code.	1, 2 Rpld	12.88.150H.19, 30
			3, 4 Added	12.88.150F.107, 108
019549	10-24-2023	An Ordinance authorizing the issuance of "City of El Paso, Texas, Water and Sewer Revenue Bonds, Series 2023A" in the aggregate principal amount of $8,680,000 to the Texas Water Development Board to finance certain wastewater system improvements; and resolving matters which are necessary to effect such issuance.		Omitted
019550	11- 7-2023	An Emergency Ordinance extending Emergency Ordinance No. 019333 authorizing the city manager to assign personnel and resources to assist in addressing the humanitarian and public safety crisis resulting from a mass migration through El Paso.		Omitted
019551	11- 7-2023	An Emergency Ordinance extending Emergency Ordinance No. 019485 due to a humanitarian, security, and economic crisis resulting from a mass migration through El Paso.		Omitted
019552	11- 7-2023	An Ordinance amending Title 14 (Aircraft and Airports), Chapter 14.20 (Airport Vehicular Traffic Regulations), Section 14.20.240 C (Regulations) of the El Paso City Code to expand veterans parking privileges to veterans with specialty plates issued by the State of New Mexico and to establish a maximum of five days of complimentary parking for veterans in the short-Term parking lot and complimentary parking with no time limit in the long-term parking lot at the El Paso International Airport; penalty as provided in 14.04.040 C.	1	14.20.240C.

Ordinance Number	Approval Date	Description	Section	Section this Code
019553	11- 7-2023	An Ordinance changing the zoning of Lots 23, 24, 25, 26, and the East 17 feet of Lot 27, Block 43, Supplemental Map #1 of East El Paso Addition, 3410, 3412, and 3418 Gateway East Boulevard, City of El Paso, El Paso County, Texas from A-3 (Apartment) to C-3 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 3410, 3412, and 3418 Gateway East Boulevard. Applicant: Alex Shaheen, PZRZ23-00015.		Omitted
019554	11- 7-2023	An Ordinance changing the zoning of the following real property known as: Parcel 1: A 0.367-acre portion of Tract 62E2, W.H. Glenn Survey 241 and Tract 4G2, Nellie D. Mundy Survey 240, City of El Paso, El Paso County, Texas, from C-1 (Commercial) to C-3 (Commercial) and, Parcel 2: A 18.228-acre portion of Tract 1B2, Nellie D. Mundy Survey 242, Tract 62E2, W.H. Glenn Survey 241 and Tracts 4G and 4G2, Nellie D. Mundy Survey 240, City of El Paso, El Paso County, Texas, from C-1 (Commercial), C-3/c (Commercial/conditions), and C-4/c (Commercial/conditions) to R-3A (Residential); and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: North of Cimarron Canyon Dr. and East of Resler Dr. Applicant: CSA Design Group, Inc., PZRZ23-00002		Omitted
019555	11- 7-2023	An Ordinance amending a condition placed on Parcel 1 by Ordinance No. 15672 which changed the zoning of a 4.32-acre portion of Tract 1B2, Nellie D. Mundy Survey 242, Tract 62E2, W.H. Glenn Survey 241 and Tract 4G2, Nellie D. Mundy Survey 240, City of El Paso, El Paso, County, Texas, and which imposed a condition, and releasing all conditions placed on Parcel 2 by ordinance No. 15708 which changed the zoning of a 0.194-acre portion of Tract 4G, Nellie D. Mundy Survey 240, City of El Paso, El Paso County, Texas, and which imposed a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed condition amendment and release meet the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: North of Cimarron Canyon Dr. and East of Resler Dr. Applicant: CSA Design Group, Inc., PZCR23-00002		Omitted
019556	11- 7-2023	An Ordinance changing the zoning of Lot 39, Block 13, Tres Suenos Unit Four Amending Plat, City of El Paso, El Paso County, Texas from C-2/c (Commercial/conditions) to P-R II/c (Planned Residential II/conditions), and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: South of Eastbrook Drive and East of Rich Beem Boulevard. Applicant: Northtowne Village Joint Venture, PZRZ23-00011		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019557	11- 7-2023	An Ordinance releasing all conditions placed on property by Ordinance No. 16385 which changed the zoning of Lot 39, Block 13, Tres Suenos Unit Four Amending Plat, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed condition release meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: South of Eastbrook Drive and East of Rich Beem Boulevard. Applicant: Northtowne Village Joint Venture, PZCR23-00001		Omitted
019558	11- 7-2023	An Ordinance changing the zoning of Lot 2, Block 6, The Village at Cimarron Unit Three, 7451 Cimarron Park Drive, City of El Paso, El Paso County, Texas from R-3A/c (Residential/conditions) to C-1 (Commercial), and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 7451 Cimarron Park Drive. Applicant: Hunt Communities Development Co. II, LLC, PZRZ23-00019		Omitted
019559	11- 7-2023	An Ordinance releasing all conditions placed on property by Ordinance No. 15672 which changed the zoning of Lot 2, Block 6, The Village at Cimarron Unit Three, 7451 Cimarron Park Drive, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed condition release meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 7451 Cimarron Park Drive. Applicant: Hunt Communities Development Co. II, LLC, PZCR23-00003		Omitted
019560	11- 7-2023	An Ordinance vacating a 0.026 acre portion of Virginia Street right-of-way, located within Alexander Addition, City of El Paso, El Paso County, Texas. Subject Property: Virginia Street. Applicant: Larry R. Wollschlager, SURW22-00014		Omitted
019561	11- 7-2023	An Ordinance authorizing the City Manager to sign a lease and concession agreement with Holguin Productions, LLC for the lease of the facility located at San Jacinto Plaza known as the San Jacinto Plaza Café, consisting of 177 square feet for a three-year term commencing on the date the City approves the lease and ending three years from the rent commencement date, at an annual rent of $5,400.00 and an annual concession fee of $600.00 to be paid on a quarterly basis, and that there is an option to extend the term for two additional one year terms by the City Manager under the same terms and conditions.		Omitted
019562	11-21-2023	An Ordinance designating a certain area as a reinvestment zone for commercial/industrial tax abatement in the City of El Paso, Texas, to be known as City of El Paso Reinvestment Zone No. 1; establishing the boundaries thereof; and providing for an effective date.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019563	11-21-2023	An Ordinance granting Special Permit No. PZST23-00010, to allow for a planned residential development on the property described as a portion of Lot 10 and 11, Block 4, Silverwood Subdivision and Tract 18A-1-A, Upper Valley Subdivision, 223 Silverwood Way, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.470 of the El Paso City Code. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed special permit meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 223 Silverwood Way. Applicant: Scott Lychwick, PZST23-00010		Omitted
019564	11-21-2023	An Ordinance granting Special Permit No. PZST23-00007, to allow for infill development with reductions to side and rear yard setbacks, a 72% parking reduction, and an 85% density increase on the property described as being the south 75 feet of Lots 1, 2 and 3, and the south 75 feet of the west 15 feet of Lot 4, Block 32, Franklin Heights Addition, 150 Brown Street, City of El Paso, El Paso County, Texas, pursuant to section 20.10.280 Infill Development of the El Paso City Code. The penalty is being as provided for in Chapter 20.24 of the El Paso City Code. The proposed special permit meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 150 Brown St. Applicant: Opportunity Center for the Homeless, PZST23-00007		Omitted
019565	11-21-2023	An Ordinance changing the zoning of the north 158 feet of Tract 187 and the north 158 feet of the east 90 feet of Tract 188, Sunrise Acres No. 1, 8687 Gateway South Boulevard, City of El Paso, El Paso County, Texas from R-4 (Residential) to C-2 (Commercial), and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 8687 Gateway South Boulevard. Applicant: Curtis Hammock, PZRZ23-00008		Omitted
019566	11-21-2023	An Ordinance changing the zoning of Tract 7B, and Tract 8, Block 52, Ysleta Grant, 9614 Socorro Road, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) and R-F/H (Ranch and Farm/Historic) to C-4 (Commercial) and C-4/H (Commercial/Historic), and imposing conditions. The penalty is as provided for in Chapter 20.24 of El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 9614 Socorro Road. Applicant: Octavio Saavedra, PZRZ22-00003		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019567	11-21-2023	An Ordinance granting Special Permit No. PZST23-00002, to allow for infill development with reductions to lot depth, area, and setbacks standards on the property described as Lots 31 & 32, Block 130, East El Paso Addition, 1408 & 1410 N. Grama Street, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. The proposed special permit meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 1408 & 1410 N. Grama Street. Applicant: Juan Martinez & Olga G. Martinez, PZST23-00002		Omitted
019568	11-21-2023	An Ordinance amending Title 20 (Zoning), Chapter 20.20 (Historic Landmark Preservation), Section 20.20.080 (Alterations and changes to landmarks and H-overlay properties) to delete section 20.20.080(A)(1). The penalty is as provided in Chapter 20.24 of the El Paso City Code.	1	20.20.080
019569	11-21-2023	An Ordinance amending Title 5 (Business License and Permit Regulations) to create Chapter 5.19 (Signage for Single-user Restrooms) and subsections thereunder in the El Paso City Code relating to signage for single-user restrooms; and creating a penalty.	2 Added	5.19.010—5.19.040
019570	11-21-2023	An Ordinance authorizing the City Manager to execute a quitclaim (tax resale) deed conveying all right, title and interest to Watermill Express, LLC, to the following and described parcel: 0.16 Acre, More or Less, Out of Tract 5-B, Block 40, Ysleta Grant, An Addition to The City of El Paso, Texas, Being More Particularly Described in Volume 312, Page 1066, Deed Records of El Paso County, Texas. In accordance with Section 34.05 (h) of the Tax Code, Section 34.05 (h) permits the City to sell a property for the total amount of the judgment and the sale of the property does not require the consent of each taxing entity entitled to receive proceeds from the sale.		Omitted
019571	12- 5-2023	An Emergency Ordinance extending Emergency Ordinance No. 019333 authorizing the city manager to assign personnel and resources to assist in addressing the humanitarian and public safety crisis resulting from a mass migration through El Paso.		Omitted
019572	12- 5-2023	An Emergency Ordinance extending Emergency Ordinance No. 019485 due to a humanitarian, security, and economic crisis resulting from a mass migration through El Paso.		Omitted
019573	12- 5-2023	An Ordinance changing the zoning for the property described as Tract 3, Section 3, and Tract 1, Section 4, Block 80, Township 1, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas from M-2/C (Heavy Manufacturing/Conditions) to C-4 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 7000 Stan Roberts. Applicant: City of El Paso, PZRZ23-00038		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019574	12- 5-2023	An Ordinance releasing all conditions placed on property by Ordinance No. 19274 which changed the zoning of Tract 3, Section 3 and Tract 1, Section 4, Block 80, Township 1, Texas & Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed condition release meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 7000 Stan Roberts. Applicant: City of El Paso, PZCR23-00005		Omitted
019575	12- 5-2023	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.041 (Schedule IV A-Parking Prohibited during certain hours- school days only, subsection B: No Parking, 7:00am to 5:00pm, Monday through Friday, School Days Only), to add Items 4. 2600 Tierra Cadiz Ct. from John Hayes St. to Tierra Murcia St.	1	12.88.041B.
019576	12- 5-2023	An Ordinance to amend Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.200 (Schedule XVII - restrictions on Parking in Residential Districts) of the City Code, TO ADD under Subsection N (No Parking, 7:00am to 5:00pm, school days only) TO ADD ITEM 17. Tierra Murcia Street between Tierra Bilbao Drive and Charles Foster Avenue, both sides; to ADD ITEM 18. Petralia Avenue between Tierra Murcia Street and Wilhoit Place, both sides; TO ADD ITEM 19. Tierra Oviedo Avenue between Tierra Murcia Street and Wilhoit Place, both sides; TO ADD ITEM 20. Wilhoit Place between Ciambriello Avenue and Petralia Avenue, west side only; TO ADD ITEM 21. Tierra Gijon Place between Tierra Bilbao Drive and Ciambriello Avenue, west side only; TO ADD ITEM 22. Tierra Malaga Place between Tierra Bilbao Drive and Ciambriello Avenue, both sides; TO ADD ITEM 23. Tierra Bilbao Drive between Tierra Murcia Street and Tierra Gijon Place, both sides; TO ADD ITEM 24. Ciambriello Avenue between Tierra Murcia Street and Tierra Gijon Place, both sides; TO ADD ITEM 25. Ciambriello Avenue between Wilhoit Place and Tierra Gijon Place, south side only; The penalty being provided in Chapter 12.88 of the El Paso City Code.	1	12.88.200
019577	12- 5-2023	An Ordinance authorizing the City Manager to sign a contract of sale with Wurldwide LLC, a Delaware limited liability company for the sale of approximately 1,039 acres of property situated in Section 3, Block 80, Township 1, Texas and Pacific Railroad Survey, Abstract No. 2381 and Section 4, Block 80, Township 1, Texas and Pacific Railroad Survey, Abstract No. 9862, City of El Paso, El Paso County, Texas further being portions of tracts of land described in deeds to City of El Paso recorded in Volume 1176, Page 504, and Volume 1186, Page 178, Deed Records, El Paso County, Texas; Known As Tax Parcels 78427 And 13470.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019578	12-12-2023	An Ordinance amending various sections of Title 20 (Zoning), Appendix A (Table of Permissible Uses), and Appendix B (Table of Density and Dimensional Standards) to adopt the Union Plaza Architectural and Design Guidelines and Update References. The penalty is as provided in Chapter 20.24 of the El Paso City Code.	2	20.04.150C.
			3	20.10.146B
			4	20.10.360B
			5	20.18.465
			6—72	Tit. 20, App. A
			73—77	Tit. 20, App. B
019579	12-12-2023	An Ordinance vacating a portion of City right-of-way located on the property described as Portion of tract 18-A, Block 4, Upper Valley. City of El Paso, El Paso County, Texas. Subject Property: 5000 Country Club Place. Applicant: El Paso Country Club, SURW23-00002		Omitted
019580	12-12-2023	An Ordinance vacating a 0.948 acre portion of Randolph Street and Blacker Avenue Right-Of-Way, located within Alexander Addition, City of El Paso, El Paso County, Texas. Subject Property: Randolph Street and Blacker Avenue. Applicants: University of Texas at El Paso SURW23-00013		Omitted
019581	12-12-2023	An Ordinance amending Title 2 (Administration and Personnel), Chapter 2.92 (Ethics), to amend the following: Section 2.92.020 (Definitions) Subsection (10) to update the definition of "Contribution"; Section 2.92.080 (Disclosure of Campaign Contributions) to require additional disclosures regarding contributions or donations from individuals or business entities receiving a benefit from a vote of City Council; Sections 2.92.120 (Jurisdiction), Subsection 2.92.130(A)(5) (Duties) and Subsection 2.92.160(B) (Filing a Complaint) to include Commission jurisdiction over and process for complaints regarding candidates, political committees and individuals or business entities obligated under Section 2.92.080; Section 2.92.160(C) (Filing a Complaint), to clarify process for complaints regarding the Chief Internal Auditor; Section 2.92.170(A) (Complaint Review) to amend the time period for response to an Ethics Complaint; and Section 2.92.200 (Disposition) to include a fine of up to $500 as a possible sanction for violation of the Ethics Code.	1	2.92.080
			2	2.92.120
			3	2.92.130A.5
			4	2.92.160
			5	2.92.170A.
			6	2.92.200D.
			7	2.92.020
019582	1- 3-2024	An Emergency Ordinance extending Emergency Ordinance No. 019333 authorizing the City Manager to assign personnel and resources to assist in addressing the humanitarian and public safety crisis resulting from a mass migration through El Paso		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019583	1- 3-2024	An Emergency Ordinance extending Emergency Ordinance No. 019485 due to a humanitarian, security, and economic crisis resulting from a mass migration through El Paso		Omitted
019584	1-17-2024	An Ordinance authorizing the City Manager to sign a Purchase and Sale Agreement, a Deed and any other documents necessary to convey approximately 7.006 acres of land legally described as out of a portion of Tracts 3A and 5A, now known as Tracts 3A3 and 5A1, Block 7, Ysleta Grant, City of El Paso, El Paso County, Texas.		Omitted
019585	1-17-2024	An Ordinance authorizing the City Manager to sign a Purchase and Sale Agreement, a Deed and any other documents necessary to convey approximately 0.11 acres of land legally described as the North 40 feet of Lots 12 to 16, Map No. 3, Block 99, Bassett's Addition, City of El Paso, El Paso County, Texas.		Omitted
019586	1-17-2024	An Ordinance authorizing the City Manager to sign a Purchase and Sale Agreement, a Deed and any other documents necessary to convey approximately 0.025 acres of land legally described as Lot 25, Block 3, Colonia Miramonte Addition Unit One, City of El Paso, El Paso County, Texas.		Omitted
019587	1-30-2024	An Emergency Ordinance extending Emergency Ordinance No. 019333 authorizing the city manager to assign personnel and resources to assist in addressing the humanitarian and public safety crisis resulting from a mass migration through El Paso		Omitted
019588	1-30-2024	An Emergency Ordinance extending Emergency Ordinance No. 019485 due to a humanitarian, security, and economic crisis resulting from a mass migration through El Paso		Omitted
019589	1-30-2024	An Ordinance granting Special Permit No. PZST23-00013, to allow for an adult day care center on the property described as a portion of Block 52, Government Hill Addition, 4115 Trowbridge Drive, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.260 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. The proposed special permit meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 4115 Trowbridge Drive. Applicant: Jireh Shiloh, LLC, PZST23-00013		Omitted
019590	2-13-2024	An Ordinance amending Title 2 (Administration and Personnel), Chapter 2.44 (Courts), Section 2.44.030 (Judges) to update and clarify the process of filling vacancies in the positions of Municipal Court Judge or Substitute Associate Municipal Court Judge.	1	2.44.030
019591	2-13-2024	An Ordinance authorizing the City Manager to sign a purchase and sale agreement, a deed, and any other documents necessary to convey approximately 0.18 acres of land described as Tracts 16E and 16B3, Block 1, Upper Valley Surveys, in the City of El Paso, El Paso County, Texas.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019592	2-13-2024	An Ordinance authorizing the City Manager to sign a purchase and sale agreement, a deed, and any other documents necessary to convey approximately 0.73 acres of land described as Tracts 4A1A, 4B1, and 5A1, Block 1, Upper Valley Surveys, in the City of El Paso, El Paso County, Texas.		Omitted
019593	2-13-2024	An Ordinance amending the Civil Service Rules and Regulations, Ordinance 8065, Rule 1, Section 2 (C) Secretary to name the Human Resources Director or designee as Secretary; and Rule 1, Section 9 Commission Recorder to enable the person carrying out the duties of the Recorder to be a City Employee hired in alignment with the City Charter.		Omitted
019594	2-26-2024	An Emergency Ordinance extending Emergency Ordinance No. 019333 authorizing the city manager to assign personnel and resources to assist in addressing the humanitarian and public safety crisis resulting from a mass migration through El Paso		Omitted
019595	2-27-2024	An Ordinance changing the zoning of a portion of Tracts 2 and 3, Block D, Christy Tract, 7814 Craddock Avenue, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) and R-3A (Residential) to R-1 (Residential). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 7814 Craddock Ave. Applicant: Romo Property Investments, LLC, PZRZ23-00031		Omitted
019596	2-27-2024	An Ordinance changing the zoning of Tracts 10A, 10B, 10B2C, 10D, 11B, 12A, 12B, 15A, 15J, 15J1, and 15J1A, Block 2, Ysleta Grant, Americas Avenue and Southwest of North Loop Drive, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm), C-3/sc (Commercial/special contract), and C-3/c (Commercial/conditions) to S-D (Special Development) and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: Americas Ave. and Southwest of North Loop Dr. Applicant: Americas 375 LLC, PZRZ23-00035		Omitted
019597	2-27-2024	An Ordinance releasing all conditions placed on property by Ordinance No. 6396 and 18811 which changed the zoning of Tracts 10A, 10B, 10B2C, 10D, 11B, 12A, 12B, 15A, 15J, 15J1, and 15J1A, Block 2, Ysleta Grant, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed condition release meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: Americas Ave. and Southwest of North Loop Dr. Applicant: Americas 375 LLC, PZCR23-00004		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019598	3-12-2024	An Ordinance changing the zoning of a portion of Tract 1G, Laura E. Mundy Survey No. 238, City of El Paso, El Paso County, Texas from R-3 (Residential) to C-3 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: Desert South Blvd. and North of Vinton Ave. Applicant: Wieland Properties, Joint Venture, PZRZ23-00029		Omitted
019599	3-12-2024	An Ordinance changing the zoning of a portion of F. Neve Survey No. 8, 4625 Delta Drive, City of El Paso, El Paso County, Texas from R-5/sp (Residential/special permit) to G-MU/sp (General Mixed Use/special permit), approving a master zoning plan, and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 4625 Delta Dr. Applicant: Enrique Mata, PZRZ23-00016		Omitted
019600	3-12-2024	An Ordinance vacating a portion of city right-of-way over a portion of Paisano Drive as shown on right-of-way map of U.S. Highway 80, Control 1, Section 4, Job 9, City of El Paso, El Paso County, Texas. Subject Property: Coldwell/Paisano ROW Vacation. Applicant: City of El Paso, SURW23-00014		Omitted
019601	3-12-2024	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.041 (Schedule IVA-Parking Prohibited During Certain Hours-School Days Only), of the City Code, under Subsection B: No Parking 7:00 AM to 5:00 PM, on any street or parts of streets from Monday through Friday on any regularly scheduled school day; to delete Item 3. Luis Gomez Place; and amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.200 (Schedule XVII-Restrictions on Parking In Residential Districts) to add Zone W: No Stopping or Standing, Tow-Away Zone, 7:00 AM to 5:00 PM school days only, and to add Item 1. Luis Gomez Place, both sides of the cul-de-sac; the penalty being provided in Chapter 12.88 of the El Paso City Code.	1	12.88.041B.
			2	12.88.200W.
019602	3-12-2024	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.44 Stopping, Standing and Parking Generally), Section 12.44.180 (Regulations Pertaining to Certain Special Situations), to add Item 33. Reserved for Consul General of El Salvador visitors: Two Parking Spaces, on the West side of 298 Leon St., convenient to the Consulate of El Salvador. No vehicles shall be parked in these spaces except the official vehicles of the Consul General of El Salvador and the vehicles of visitors designated by the Consul.	1	2.44.180B.33
019603	3-25-2024	An Emergency Ordinance extending Emergency Ordinance No. 019333 authorizing the city manager to assign personnel and resources to assist in addressing the humanitarian and public safety crisis resulting from a mass migration through El Paso		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019604	3-25-2024	An Emergency Ordinance extending a disaster declaration due to a humanitarian, security, and economic crisis resulting from mass migration waves through El Paso		Omitted
019605	3-26-2024	An Ordinance changing the zoning of Lot 32, Block 14-C, Vista Del Sol Unit 10, Replat B, 1150 Vista De Oro Drive, City of El Paso, El Paso County Texas from P-I (Planned Industrial) to C-3 (Commercial), and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 1150 Vista De Oro Drive. Applicant: Rogers Properties, LLC., PZRZ23-00032		Omitted
019606	3-26-2024	An Ordinance changing the zoning of a portion of Tract 92, Map of Sunrise Acres No. 2, 4707 Atlas Avenue, City of El Paso, El Paso County, Texas from R-4 (Residential) to A-2 (Apartment), and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 4707 Atlas Avenue. Applicant: Helmut Group Inc., PZRZ23-00036		Omitted
019607	3-26-2024	An Ordinance changing the zoning of Lot 55 Rangers Rest No. 2 and a portion of Tract 3L, Block 55, Ysleta Grant Survey, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) and R-4 (Residential) to A-O (Apartment/Office). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 1165 Ranger Street. Applicant: Elton John Valentin Colon and Cristina Flores Parada, PZRZ23-00027		Omitted
019608	3-26-2024	An Ordinance amending Title 15, (Public Services), Chapter 15.08 (Street Rentals), Section 15.08.160 (Mobile Billboards) of the El Paso City Code ending the mobile billboard pilot program and allowing mobile billboard permits to be issued on a yearly basis. The penalty is as provided for in Chapter 15.08.160 of the El Paso City Code.	1	15.08.160C.
019609	3-26-2024	An Ordinance granting a Special Privilege License to Centro De Salud Familiar La Fe, Inc. to allow the surface encroachment of an existing backflow preventer over City Right-Of-Way located in the alley behind the property located at 700 South Ochoa Street, El Paso, Texas: setting the license term of ten years (10) with one (1) renewable ten (10) year term. Subject Property: 700 South Ochoa. Applicant: Centro De Salud Familiar La Fe, Inc. PSPN23-00011		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019610	4- 9-2024	An Ordinance changing the zoning of a portion of Tracts 17C-174 and 17C-175, Section 8, Block 79, Township 3, Texas and Pacific Railway Company Survey, South of Vista del Sol Drive and West of Joe Battle Boulevard, City of El Paso, El Paso County, Texas from R-3 (Residential) to C-3 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: South of Vista del Sol Dr. and West of Joe Battle Blvd. Applicant: El Paso Vista HY RE, LLC, PZRZ23-00034.		Omitted
019611	4-22-2024	Emergency Ordinance extending Emergency Ordinance No. 019333 authorizing the City Manager to assign personnel and resources to assist in addressing the humanitarian and public safety crisis resulting from a mass migration through El Paso.		Omitted
019612	4-22-2024	Emergency Ordinance extending Ordinance No. 019604 due to a humanitarian, security, and economic crisis resulting from mass migration waves through El Paso.		Omitted
019613	4-23-2024	An Ordinance amending Title 15 (Public Services), Chapter 15.08 (Street Rentals), Section 15.08.120 (Special Privilege Licenses and Permits) to add new uses for the Sidewalk Cafe and Parking Parklet Programs and adopt the Right-Of-Way Cafe Design Guidelines. The penalty is as provided in Section 15.08.125.	2—8	15.08.120
019614	4-23-2024	An Ordinance of the City Council of the City of El Paso, Texas, approving amendment number twenty-three to the Project and Financing Plan for Tax Increment Reinvestment Zone Number Five, City of El Paso, Texas, amending the plan to update the projected tax increment reinvestment zone revenue and establishing project cost categories.		Omitted
019615	4-23-2024	An Ordinance amending Ordinance No. 016528 to modify requirements for membership on the Board of Directors of the Tax Reinvestment Zone Number Five, City of El Paso, Texas.		Omitted
019616	4-23-2024	An Ordinance Amending Title 9 (Health and Safety) Chapter 9.85 (Emergency and Transfer Ambulance Services), Section 9.85.060 (Franchise - Application - Contents) to add a process for Denial of Franchise application; Section 9.85.070 (Franchise - Application; Review; Hearing) To add factors considered for Public convenience and necessity; Section 9.85.130 (Violation - Penalty) to move to Section 9.85.140 and be replaced with (Suspension; Revocation: Appeal) Giving Due Process after suspension or revocation, of the El Paso City Code.	1	9.85.060
			2	9.85.070
			3	9.85.130
			4	9.85.140

Ordinance Number	Approval Date	Description	Section	Section this Code
019617	4-23-2024	An Ordinance changing the zoning of the property described as a portion of Lots 20 and 21, Block 92, Bassett Addition, 2607 Montana Avenue, City of El Paso, El Paso County, Texas from A-2 (Apartment) to S-D (Special Development), pursuant to section 20.04.360, and approving a detailed site development plan pursuant to section 20.04.150 and 20.10.360 of the El Paso City Code to allow for a business office as permitted in the S-D (Special Development) Zone District. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning and detailed site development plan meet the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 2607 Montana Ave. Applicant: Carlos Estrello Jr., PZRZ23-00040.		Omitted
019618	4-23-2024	An Ordinance changing the zoning of a parcel of land being a portion of Tract 1, now known as Track 1B1 and Portion of Track 1B, now known as Tract 1B, Block 8, Ysleta Grant, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) to C-1 (Commercial), and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 319 and 323 N. Zaragoza Rd. Applicant: Albert Nabhan, PZRZ23-00014.		Omitted
019619	4-23-2024	An Ordinance restating a Special Privilege License granted to the County of El Paso by Ordinance 019432 that authorized the construction, installation, future maintenance, use and repair of 540 linear feet of all necessary, desirable, subsurface wires, cables, underground conduit, manholes or other related infrastructure. Additionally, this ordinance will allow for the expansion of the infrastructure to include an additional 635 linear feet of 3" conduit for fiber optic cable and the addition of one more manhole for a term of five (5) years with two (2) renewable five (5) year terms. Location: generally, along a portion of Ochoa Street, First Avenue and South Florence Street. Applicant: County of El Paso, PSPN23-00008.		Omitted
019620	4-23-2024	An Ordinance amending Title 2 (Administration and Personnel), Chapter 2.92 (Ethics), to amend Section 2.92.020 Definition of Candidate and 2.92.080(E) to include a requirement for candidates to provide notice of contributions of $500 or more for notation on the City Council Agenda in the same manner as Members of City Council.	1	2.92.020
			2	2.92.080E
019621	5- 7-2024	An Ordinance authorizing the issuance of City of El Paso, Texas, Municipal Drainage Utility System Revenue Refunding Bonds in an aggregate amount not to exceed $75,200,000 to refund certain previously issued obligations of the City; and resolving matters which are necessary to effect such issuance, including the delegation of matters relating to the sale and issuance of the bonds to an authorized City officer or employee within certain specified parameters.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019622	5- 7-2024	An Ordinance authorizing the issuance of City of El Paso, Texas, Water and Sewer Revenue Refunding Bonds in an aggregate amount not to exceed $40,480,000 to refund certain previously issued obligations of the City for debt service savings; and resolving matters which are necessary to effect such issuance, including the delegation of matters relating to the sale and issuance of the bonds to an authorized City officer or employee within certain specified parameters.		Omitted
019623	5- 7-2024	An Ordinance establishing a water and sewer utility system extendable commercial paper program and authorizing the issuance of program obligations in an aggregate principal amount not to exceed $300,000,000 outstanding at any one time, prescribing the terms, features and characteristics of such obligations; making certain covenants and agreements in connection therewith; providing for the payment of the obligations; resolving other matters related thereto, including approval of a dealer agreement and issuing and paying agent agreement; and providing an effective date.		Omitted
019624	5- 7-2024	An Ordinance authorizing the issuance of City of El Paso, Texas, Water and Sewer Revenue Refunding Bonds in an aggregate amount not to exceed $303,000,000 to refund certain system extendable commercial paper notes; and resolving matters which are necessary to effect such issuance, including the delegation of matters relating to the sale and issuance of the bonds to an authorized city officer or employee within certain specified parameters.		Omitted
019625	5- 7-2024	An Ordinance authorizing the issuance of City of El Paso, Texas, General Obligation Refunding Bonds, Series 2024 for debt service savings in an aggregate original principal amount of the Bonds not to exceed $88,050,000; levying a continuing direct annual ad valorem tax for the payment of such Bonds; and resolving other matters which are necessary to effectuate such issuance; including the delegation of matters relating to the sale and issuance of such Bonds to an authorized City official within certain specified parameters.		Omitted
019626	5- 7-2024	An Ordinance amending the following provisions of the El Paso City Code Title 15 (Public Services), Chapter 15.22 (Water and Wastewater Impact Fees): Section 15.22.060 (Land Use Assumptions and Service Area) and Section 15.22.070 (Capital Improvement Plan) to update dates; Section 15.22.100 (Maximum Fee and Actual Fee to be Assessed) to update water and wastewater impact fee per service unit; and Appendix B (Impact Fee Assessment Schedules) to update the water and wastewater schedule.	2	15.22.060
			3	15.22.070
			4	15.22.100
			5	Ch. 15.22, App. B

Ordinance Number	Approval Date	Description	Section	Section this Code
019627	5- 7-2024	An Ordinance changing the zoning of a portion of Tract 12-B, Block 24, Socorro Grant, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) to M-1 (Light Manufacturing), and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning request is based on the proposed Comprehensive Plan and Future Land Use Map (FLUM) amendment (PLCP24-00001) request of Plan El Paso, the City's adopted comprehensive plan. Subject Property: South of Winn Rd. and East of Southside Rd. Applicant: City of El Paso - El Paso Water, PZRZ23-00012.		Omitted
019628	5- 7-2024	An Ordinance amending the Future Land Use Map (FLUM) contained in "Plan El Paso" for the properties legally described as a portion of Tract 12-B, Block 24, Socorro Grant, City of El Paso, El Paso County, Texas, from O-1, Preserve to G-7, Industrial and/or Railyards. Subject Property: South of Winn Rd. and East of Southside Rd. Applicant: City of El Paso - El Paso Water, PLCP24-00001.		Omitted
019629	5- 7-2024	An Ordinance granting Special Permit No. PZST23-00009, to allow for Infill Development with a reduction in rear yard setback and side street yard setback and 85% parking reduction on the property described as a portion of Lots 14, 15, and 16, Block 118, Supplemental Map No. 1 of East El Paso Addition, 1205 N. Copia Street, City of El Paso, El Paso County, Texas, Pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. The proposed special permit meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 1205 N. Copia. Applicant: Victor Robles, PZST23-00009.		Omitted
019630	5- 7-2024	An Ordinance changing the zoning of the property described as Tracts 407 and 408, Sunrise Acres #1, 8935 Mercury Street, City of El Paso, El Paso County, Texas from R-4 (Residential) to S-D (Special Development), pursuant to Section 20.10.360 and approving a detailed site development plan with reduction to side yard setback pursuant to Section 20.04.150 and 20.10.360 of the El Paso City Code to allow for a single-family dwelling and a triplex as permitted in the S-D (Special Development) zone district. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 8935 Mercury Street. Applicant: Gary L. Herman and Shawn M. Schulz, PZRZ23-00026.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019631	5- 7-2024	An Ordinance changing the zoning of a portion of Tracts 63 and 64, Cinecue Park Subdivision, 471 Fresno Drive, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) to R-3 (Residential). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 471 Fresno Drive. Applicant: Jose Angel Avila and Jacqueline Avila, PZRZ23-00030.		Omitted
019632	5- 7-2024	An Ordinance approving the adoption of an ad valorem property tax exemption for qualified commercial child-care facilities and amending Title 3 (Revenue and Finance) of the El Paso Municipal Code, Chapter 3.04 (Property Taxes) by adding section 3.04.042 (Exemption—Child-care facilities) for entities that qualify under the current code. This Ordinance shall be effective January 1, 2024 upon adoption by the City Council of the City of El Paso.	4	3.04.042
019633	5- 7-2024	An Ordinance amending Ordinance No. 16143 relating to Fines, Fees and Penalties in effect in the El Paso City Code to add authorization for a fee for Library Cards and Enhanced Library Cards.		Omitted
019634	5-20-2024	Emergency Ordinance extending Emergency Ordinance No. 019333 authorizing the City Manager to assign personnel and resources to assist in addressing the humanitarian and public safety crisis resulting from a mass migration through El Paso.		Omitted
019635	5-20-2024	Emergency Ordinance extending Ordinance No. 019604 due to a humanitarian, security, and economic crisis resulting from mass migration waves through El Paso.		Omitted
019636	5-21-2024	An Ordinance amending Title 5 (Business License and Permit Regulations), Chapter 5.03 (Amplified Sound Permit), Section 5.03.010 (Compliance Required) to remove the Downtown Management District exemption and Section 5.03.020 (Definitions) to amend the definition of residential property of the El Paso City Code; the penalty as provided in 5.03.130 of the El Paso City Code.	1	5.03.010
			2	5.03.020
019637	6- 4-2024	An Ordinance changing the zoning of all of tracts 4C-1 and 4C-1B, Block 52, Ysleta Grant, City of El Paso, El Paso County, Texas from A-2/sc (Apartment/special contract) and A-2/H/sc (Apartment/Historic/special contract) to C-1/sc (Commercial/special contract) and C-1/H/sc (Commercial/Historic/special contract). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: South of La Morenita Circle and West of Socorro Road. Applicant: B & B Socorro, LLC., PZRZ23-00028.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019638	6-10-2024	Emergency Ordinance extending Emergency Ordinance No. 019333 authorizing the City Manager to assign personnel and resources to assist in addressing the humanitarian and public safety crisis resulting from a mass migration through El Paso.		Omitted
019639	6-10-2024	Emergency Ordinance extending Ordinance No. 019604 due to a humanitarian, security, and economic crisis resulting from mass migration waves through El Paso.		Omitted
019640	6-11-2024	An Ordinance amending Title 5 (Business License and Permit Regulations); Chapter 5.12 (Dealers in Secondhand goods, dealers in crafted precious metals, coin dealers and pawnbrokers); Section 5.12.080 (License-Denial, Appeal) to amend "Hearing Officer" to "Municipal Associate Judge" of the El Paso City Code.	1	5.12.080
019641	6-11-2024	An Ordinance amending Title 5 (Business License and Permit Regulations); Chapter 5.13 (Security Alarm Systems); Section 5.13.120 (Appeal from assessment of civil penalty) and Section 5.13.130 (Reinstatement of Permit) to amend "Hearing Officer" to "Municipal Associate Judge" of the El Paso City Code.	1	5.13.120
			2	5.13.130C
019642	6-11-2024	An Ordinance amending Title 6 (Transportation for Hire), Chapter 6.04 (Transportation for Hire), to amend Section 6.04.140 (Operating Authority to Permit and Taxicab Zone Permit Denial, Suspension, Revocation - Appeal) to amend "Hearing Officer" to "Municipal Associate Judge" of the El Paso City Code.	1	6.04.140
019643	6-11-2024	An Ordinance amending Title 9 (Health and Safety), Chapter 9.20 (Social Host Accountability Ordinance), Section 9.20.100 (Hearings on the Imposition of Civil Penalty - Appeals) to amend "Administrative Hearing Officer" to " Municipal Associate Judge" of the El Paso City Code.	1	9.20.100
019644	6-11-2024	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.85 (Parking Violations Bureau), Section 12.85.020 (Hearing Officers), Section 12.85.030 (Parking Citations), Section 12.85.050 (Hearings), Section 12.85.060 (Appeal); Section 12.85.065 (Final Judgments), and Section 12.85.100 (Boot Hearing) to amend 'Hearing Officer' to 'Municipal Associate Judge' and 'Municipal Associate Judge' to 'El Paso Municipal Court of Appeals' of the El Paso City Code.	1	12.85.020
			2	12.85.030C
			3	12.85.050
			4	12.85.060
			5	12.85.065A.2
			6	12.85.100

Ordinance Number	Approval Date	Description	Section	Section this Code
019645	6-11-2024	An Ordinance changing the zoning of a 17.444 acre Tract of land situated in the O.A. Danielson Survey, Number 316, being a portion of that certain 32.412-acre Tract, and 4.806 acre Tract of land situated in Ysleta Grant Block 56, being a portion of Tract 8 and 9, of said Block 56, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) and R-3 (Residential) to C-4 (Commercial), and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: Gateway East and Southeast of Americas. Applicant: David Ballard, PZRZ23-00041.		Omitted
019646	6-11-2024	An Ordinance authorizing the City Manager to sign a purchase and sale agreement, a deed, and any other documents necessary to convey approximately 0.17 acres of land described as a portion of Tract 5D-1, Block 1, Upper Valley Surveys, in the City of El Paso, El Paso County, Texas.		Omitted
019647	7- 1-2024	An Emergency Ordinance extending Emergency Ordinance No. 019333 authorizing the City Manager to assign personnel and resources to assist in addressing the humanitarian and public safety crisis resulting from a mass migration through El Paso.		Omitted
019648	7- 2-2024	An Ordinance authorizing the City Manager to sign a contract of sale with Notes Live Inc, a Colorado corporation, for the sale of approximately 17 acres of property located at the Northeast corner of Cohen Avenue and Gateway Boulevard North, El Paso, TX 79924, legally described as a portion of Block 7, Castner Range Subdivision No. 1, City of El Paso, El Paso County, Texas.		Omitted
019649	7- 2-2024	An Ordinance approving amendment number three to the Final Project and Financing Plan for Tax Increment Reinvestment Zone Number Eleven, City of El Paso, Texas; making various findings related to such Plan; providing for severability; and providing an effective date.		Omitted
019650	7- 2-2024	An Ordinance changing the zoning of all of Tracts 90-A, 92, and 93, S.A. & M.G. Railroad Survey #267, City of El Paso, El Paso County, Texas from R-4 (Residential) to C-3 (Commercial), and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: North of Thorn and West of Doniphan. Applicant: Martha M. Santana, PZRZ24-00003.		Omitted
019651	7- 2-2024	An Ordinance vacating a ten-foot Public Utility Easement (0.010 Acres of Land) located within Lot 9, Block 12, Stanton Heights Unit Three, City of El Paso, El Paso County, Texas. Subject Property: 3312 Martina Pl. Applicant: Elizabeth Morales, SUET24-00001.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019652	7- 2-2024	An Ordinance authorizing the City Manager to sign a deed and any other documents necessary to convey approximately 0.0061 acres of land legally described as a portion of Section 35, Block 79, Township 2, T&P R.R. Co. Survey, Abstract No. 2139, City of El Paso, El Paso County, Texas.		Omitted
019653	7- 2-2024	An Ordinance authorizing the City Manager to sign a purchase and sale agreement, a deed and any other documents necessary to convey approximately 16.2097 acres of land, legally described as portion of Section 9, Township 27, South Range 3 East, New Mexico Principle Meridian, Dona Ana County, New Mexico.		Omitted
019654	7-16-2024	An Ordinance authorizing the conveyance of real property owned by the City of El Paso to VTRE Development, LLC for the purchase price of $18,720,000. Such real property legally described as a portion of Lot 1, Block 1, El Paso West, as filed in Book 57, Page 5 of the plat records of El Paso County, Texas.		Omitted
019655	7-29-2024	An Emergency Ordinance extending Emergency Ordinance No. 019333 authorizing the City Manager to assign personnel and resources to assist in addressing the humanitarian and public safety crisis resulting from a mass migration through El Paso.		Omitted
019656	7-30-2024	An Ordinance granting a Special Privilege License to EPT Montecillo I-10 Development, LLC to permit the construction, installation, maintenance, use, and repair of a surface encroachment for two (2) Art Sculptures and Ancillary Items over City right-of-way at the roundabout intersection located at Vin Rambla Drive and Vin Roda Drive, additionally, this ordinance encompasses the placement of twenty three (23) wayfinding signs and nine (9) electric meters at various locations within the Montecillo Development; setting the license term for a term of ten years (10) with one (1) renewable ten (10) year term. Location: Vin Rambla Drive and Vin Roda Drive, and various locations within the Montecillo Development. Applicant: EPT Montecillo I-10 Development, LLC, PSPN23-00007.		Omitted
019657	7-30-2024	An Ordinance authorizing the City Manager to execute a quitclaim (tax resale) deed conveying all right, title and interest to Ignacio Villanueva Macias, to the following and described parcel: Tract 11, (.48 Acre), Block 44, San Elizario, El Paso County, Texas. In accordance with Section 34.05 (h) of the Tax Code. Section 34.05 (h) permits the City to sell a property for the total amount of the judgment and the sale of the property does not require the consent of each taxing entity entitled to receive proceeds from the sale.		Omitted
019658	8-13-2024	An Ordinance granting to Valu Advertising, LLC a non-exclusive franchise for waste containers on sidewalks and other city property.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019659	8-13-2024	An Ordinance changing the zoning of the following real property known as: Parcel 1: 52.17 Acres of land out of a 381.90 Acre Tract (described in Volume 2526, Page 2033 Real Property Records of El Paso County, Texas), now known as Tract 1A, Section 16, Block 79, Township 3, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas from R-3 (Residential) and R-F (Ranch and Farm) to C-4 (Commercial); and, Parcel 2: 9.72 Acre portion out of a 381.90 Acre Tract described in Volume 2526, Page 2033, Real Property Records of El Paso County, Texas, being Tract 1A, Section 16, Block 79, Township 3, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas, from R-F (Ranch and Farm) to C-2 (Commercial); and, Parcel 3: 15.00 Acres of land out of a 381.90 Acre Tract (described in Volume 2526, Page 2033, Real Property Records of El Paso County, Texas), now known as Tract 1A, Section 16, Block 79, Township 3, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas, from R-F (Ranch and Farm) to A-O (Apartment/Office), and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: Joe Battle Boulevard and North of Pellicano Drive. Applicant: County of El Paso, PZRZ23-00018.		Omitted
019660	8-13-2024	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.56 (Parking Meters), Section 12.56.070 (Applicability of Proceeds) to remove the Applicability of Proceeds from 2025 until 2042 for the Central Traffic District and the South El Paso District.	3	12.56.070
019661	8-13-2024	An Ordinance ordering a Special Election to be held in the City of El Paso, Texas to determine whether to revoke the City's authority to issue bonds for the Multipurpose Performing Arts and Entertainment Facility voted at the City's November 6, 2012 Election; making provision for the conduct of the election; and resolving other matters incident and related to such election.		Omitted
019662	8-20-2024	An Ordinance levying FY2025 taxes.		Omitted
019663	8-26-2024	An Emergency Ordinance extending Emergency Ordinance No. 019333 authorizing the City Manager to assign personnel and resources to assist in addressing the humanitarian and public safety crisis resulting from a mass migration through El Paso.		Omitted
019664	8-27-2024	An Ordinance amending Title 9 (Health and Safety), Chapter 9.04 (Solid Waste Management), Section 9.04.170 (Collection Providers) addressing the need for disposal of solid waste at all commercial and mixed-use properties, By adding provisions to require notice and time to remedy violations, and for the enforcement of this section, of the El Paso City Code, promoting greater safety and improved service to the citizens of El Paso in the collection of solid waste at commercial and mixed-use properties throughout the City of El Paso.	1	9.04.170

Ordinance Number	Approval Date	Description	Section	Section this Code
019665	8-27-2024	An Ordinance amending Title 9 (Health and Safety), Chapter 9.04 (Solid Waste Management), Section 9.04.100 (Location for Collection) of the El Paso City Code to add alleys to approved excluded collection locations and establish alley collection service and procedures at designated locations and expand the requirements for sidedoor collection.	1	9.04.100
019666	8-27-2024	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.44 (Stopping, Standing and Parking Generally), Section 12.44.010 (Where Signs Required) to add Alleys, Section 12.44.080 (Traffic Obstruction Prohibited) to add No Parking Signs, Section 12.44.160 (Parking in Alleys) to add Designation of Authority of the El Paso City Code.	1	12.44.010
			2	12.44.080
			3	12.44.160
019667	8-27-2024	An Ordinance of the City Council of the City of El Paso, Texas, reaffirming the City's participation in the Texas Enterprise Zone Program pursuant to the Texas Enterprise Zone Act, Chapter 2303, Texas Government Code ("Act"); confirming the designation of a liaison for communication with interested parties; providing available tax incentives; and allowing for future nominations of qualified businesses and enterprise projects to be approved by resolution if nominee meets all requirements as established by the act and any other applicable state law.		Omitted
019668	9-10-2024	An Ordinance changing the zoning of a portion of Tracts 17C1 and 17C2, Section 8, Block 79, Township 2, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas from C-4/c (Commercial/conditions) to C-2/c (Commercial/condition), and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: Picasso and Zaragoza Applicant: Picasso Place, LLC, PZRZ24-00007.		Omitted
019669	9-10-2024	An Ordinance amending a condition placed on property by Ordinance No. 15959 which changed the zoning of a portion of Tracts 17C1 and 17C2, Section 8, Block 79, Township 2, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed condition release meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: Picasso and Zaragoza Applicant: Picasso Place, LLC, PZCR24-00001.		Omitted
019670	9-10-2024	An Ordinance authorizing the City Manager to sign a Purchase and Sale Agreement, a Deed and any other documents necessary to convey approximately 22.6965 acres of land, legally described as a portion of Tract 24-1099 Page 15 of 17 198, within sections 14, 15, 22 and 23, Township 27, South Range 3 East, New Mexico Principle Meridian, Dona Ana County, New Mexico.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019671	9-10-2024	An Ordinance authorizing the City Manager to sign a Purchase and Sale Agreement, a Deed and any other documents necessary to convey approximately 16.6433 acres of land, legally described as a portion of fractional lots 11 And 12, Section 22, Township 27, South Range 3 East, New Mexico Principle Meridian, Dona Ana County, New Mexico.		Omitted
019672	9-23-2024	An Emergency Ordinance extending Emergency Ordinance No. 019333 authorizing the City Manager to assign personnel and resources to assist in addressing the humanitarian and public safety crisis resulting from a mass migration through El Paso.		Omitted
019673	9-24-2024	An Ordinance changing the zoning of Lot 3, Block 1, Coronado del Sol, City of El Paso, El Paso County, Texas, from R-3 (Residential) and R-5/sc (Residential/special contract) to A-3 (Apartment) and A-3/sc (Apartment/special contract), and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: Mesa Hills and Northwest of Sunland Park 24-972 Applicant: Housing Authority of the City of El Paso, PZRZ24-00002.		Omitted
019674	9-24-2024	An Ordinance granting Special Permit No. PZST24-00004, to allow for a Governmental Use, Building on the property described as being a portion of Tracts 4E & 4H, A.F. Miller Survey No. 215, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.260 of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. The proposed special permit meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 5625 Confetti Dr. Applicant: City of El Paso, PZST24-00004.		Omitted
019675	9-24-2024	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.010 (Schedule I - One-Way Streets) of the City Code, TO ADD ITEM 97. W Main Drive from El Paso Street to N Santa Fe Street.; and amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.030 (Schedule III - Parking Prohibited at all Times on Certain Streets), to add item 388. W Main Drive from El Paso Street to N Santa Fe Street, south side.	1	12.88.010
			2	12.88.030
019676	10-21-2024	An Emergency Ordinance extending Emergency Ordinance No. 019333 authorizing the city manager to assign personnel and resources to assist in addressing the humanitarian and public safety crisis resulting from a mass migration through El Paso.		Omitted
019677	10-22-2024	An Ordinance granting to River Elms, LLC a non-exclusive franchise for waste containers on sidewalks and other City property.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019678	11-12-2024	An Ordinance amending the Future Land Use Map (FLUM) contained in "Plan El Paso" for the properties legally described as Tracts 20A, 20A2, 20B, 21 and 22A, Block 2, Ysleta Grant, City of El Paso, El Paso County, Texas, from O-3, Agriculture to G-7 Industrial. Subject Property: 300 Nevarez and 546 Inglewood. Applicant: RE Foundation, LLC. PLCP24-00004		Omitted
019679	11-12-2024	An Ordinance changing the zoning of Tracts 20A, 20A2, 20B, 21 and 22A, Block 2, Ysleta Grant, 300 Nevarez and 546 Inglewood, City of El Paso, El Paso County, Texas, from R-F (Ranch-Farm) to C-4 (Commercial) and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 300 Nevarez and 546 Inglewood. Applicant: RE Foundation, LLC. PZRZ24-00004		Omitted
019680	11-12-2024	An Ordinance amending the Future Land Use Map (FLUM) contained in "Plan El Paso" for the properties legally described as Tract 16-A, Block 2, Ysleta Grant, City of El Paso, El Paso County, Texas, from O-3, Agriculture to G-7 Industrial. Subject Property: 445 Inglewood. Applicant: Valley Cold Storage and Transportation. PLCP24-00005		Omitted
019681	11-12-2024	An Ordinance changing the zoning of Tract 16-A, Block 2, Ysleta Grant, 445 Inglewood, City of El Paso, El Paso County, Texas, from R-F (Ranch-Farm) to C-4 (Commercial) and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 445 Inglewood. Applicant: Valley Cold Storage and Transportation. PZRZ24-00023		Omitted
019682	11-12-2024	An Ordinance amending condition No. 1 and releasing conditions No. 3 and No.4 placed on property by Ordinance No. 019219 which changed the zoning of Lot 1, Block 1, Inglewood Subdivision, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed condition release meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 551 Inglewood. Applicant: Inglewood Properties, LLC, PZCR24-00002		Omitted
019683	11-12-2024	An Ordinance releasing all conditions placed on property by Ordinance No. 019343 which changed the zoning of Tracts 2, 2B, and 3D, Block 2, Ysleta Grant, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed condition release meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 1000 Inglewood. Applicant: BRE Development, LLC, PZCR24-00003		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019684	11-12-2024	An Ordinance authorizing the City Manager to execute a quitclaim (tax resale) deed conveying all right, title and interest to Hector Perez II, of the following and described parcel: Tract 1, J A Friedenbloom, Survey 130, Abstract 2732, an Addition to the City of El Paso, El Paso County, Texas. In accordance with Section 34.05 (h) of the Tax Code. Section 34.05 (h) permits the City to sell a property for the total amount of the judgment and the sale of the property does not require the consent of each taxing entity entitled to receive proceeds from the sale.		Omitted
019685	11-18-2024	An Emergency Ordinance extending Emergency Ordinance No. 019333 authorizing the city manager to assign personnel and resources to assist in addressing the humanitarian and public safety crisis resulting from a mass migration through El Paso.		Omitted
019686	11-19-2024	An Ordinance authorizing the City of El Paso to sell to the State of Texas, acting by and through the Texas Department of Transportation, approximately 0.0208 acres of land located in the Nellie D. Mundy Survey Number 241, City of El Paso, El Paso County, Texas.		Omitted
019687	11-19-2024	An Ordinance authorizing the City of El Paso to sell to the State of Texas, acting by and through the Texas Department of Transportation, approximately 0.5069 acres of land located in the Nellie D. Mundy Survey Number 241, El Paso County, Texas.		Omitted
019688	11-19-2024	An Ordinance amending Title 2 (Administration and Personnel), Chapter 2.64 (City Employees' Pension Fund), to amend the following: Section 2.64.030 (Board of Trustees-Membership) to create Subsection (D) regarding advocating for candidates in trustee elections; Section 2.64.190A (Contributions) to delete obsolete language; Subsection 2.64.200(B) to add language clarifying and defining "Preceding Retirement" under Section 2.64.200(B)(2) and create Subsection 2.64.200(B)(5) to define "Pensionable Gross Contributions"; Section 2.64.205(A)(3)(B) (Proportionate Retirement Benefits), to clarify years that apply for pension credit; Section 2.64.210, Subsection 2.64.210A, Subsection 2.64.210B, Subsection 2.64.210C(1), and Subsection 2.64.210E (Disability Pensions), Subsection 2.64.210C(3) and Subsection 2.64.210C(5) to define and clarify pension for employees who become disabled; and Section 2.64.230 (Death Benefits of Widows and Children) to add new Section (M) regarding proof of incapacitation.	1	2.64.030
			2	2.64.190, 2.64.200
			4	2.64.205
			5	2.64.210
			1	2.64.230
019689	11-19-2024	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), 12.88.180 (No Stopping or Standing Tow-Away Zone), Subsection A, TO ADD ITEM 119: N El Paso Street from Franklin Avenue to W Main Drive, west side.	1	12.88.180

Ordinance Number	Approval Date	Description	Section	Section this Code
019690	12- 3-2024	An Ordinance changing the zoning of a parcel of land being the East 60 feet of Lots 13 through 17, Block 21, Second Revised Map of Sunset Heights, 914 W. Yandell Drive, City of El Paso, El Paso County, Texas from R-4/H (Residential/Historic) to R-MU/H (Residential Mixed Use/Historic) and approving a Master Zoning Plan with reduction to minimum district area required and 100% parking reduction. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 914 W. Yandell. Applicant: Robert Palacios, PZRZ24-00010		Omitted
019691	12- 3-2024	An Ordinance granting Special Permit No. PZST23-00015, to allow for Infill Development with reductions to minimum lot area and minimum average lot width on the property described as Lot 2, Block 5, Mountain View, 5004 Catskill Avenue, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. The proposed special permit meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 5004 Catskill. Applicant: Jaime Gallo, PZST23-00015		Omitted
019692	12- 3-2024	An Ordinance changing the zoning of being Tracts 9, 10, and a portion of Tracts 8, 13, and 14, O.A. Danielson Survey No. 310, 1401 N. Zaragoza Road, City of El Paso, El Paso County, Texas from R-3 (Residential) to A-O (Apartment/Office) and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 1401 N. Zaragoza. Applicant: Jorge M. Sanchez, PZRZ23-00037		Omitted
019693	12- 3-2024	An Ordinance changing the zoning of a portion of Section 13 and 14, Block 81, Township 2, Texas and Pacific Railroad Surveys, 7000 Alabama Street, City of El Paso, El Paso County, Texas from R-2 (Residential) and R-3 (Residential) to C-3 (Commercial), and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 7000 Alabama St. Applicant: 7000 Alabama, LLC, PZRZ24-00017		Omitted
019694	12-16-2024	An Emergency Ordinance extending Emergency Ordinance No. 019333 authorizing the city manager to assign personnel and resources to assist in addressing the humanitarian and public safety crisis resulting from a mass migration through El Paso.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019695	12-17-2024	An Ordinance amending Title 5 (Business License and Permit Regulations), Chapter 5.03 (Amplified Sound Permit), Article I (General Provisions), Section 5.03.010 (Compliance Required) to add exception for events at venues with more than 2,500 seating capacity; Section 5.03.020 (Definitions) to amend definitions of establishment and outdoor area; Article II (Permit Application Process), Section 5.03.040 (Permit Application Processing) to increase the radiuses for property owner and neighborhood association notification requirements; Article III (Denial, Suspension, Revocation and Appeals) Section 5.03.080 (Denial) to increase the radius for residential property owners to contest a permit; Article IV (Permit Standards), Section 5.03.130 (Violation) to amend the number of violations that can result in suspension or revocation of permit; Article VI (Violation, Penalty), Section 5.03.130 (Violation) to clarify that the City may seek civil action and penalties of up to $1,000 per day; The penalty as provided in 5.03.130 of the El Paso City Code.	1	5.03.010.C
			2	5.03.020
			3	5.03.040.B
			4	5.03.080.B.5
			5, 6	5.03.130
019696	12-17-2024	An Ordinance amending Title 9 (Health and Safety), Chapter 9.40 (Noise), Section 9.40.010 (Definitions) to add definitions for low ambient reading and stadium event; Section 9.40.020 (Applicability) to clarify the reasonable sensibilities standard and exception for events at venues with more than 2,500 seating capacity; Section 9.40.030 (Sound Level Violations) to clarify the maximum sound level for "C" readings and the location of sound readings; Section 9.40.040 (Vibration) to clarify that vibration violations can occur on any affected property; Section 9.40.070 (Penalties) to clarify that the City may seek civil action and penalties of up to $1,000 per day; Section 9.40.080 (Enforcement) to clarify which City departments have authority to enforce; The penalty as provided in Section 9.40.070 of the City Code.	1	9.40.010
			2	9.40.020
			3	9.40.030
			4	9.40.040
			5	9.40.070.C
			6	9.40.080
019697	12-17-2024	An Ordinance changing the zoning of a portion of Tract 3, Section 10, Block 80, Township 1, Texas and Pacific Railroad Company Surveys, City of El Paso, El Paso County, Texas from A-2/c (Apartment/condition) and C-2 (Commercial) to C-4 (Commercial) and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: Stan Roberts Sr. and US-54 Patriot Freeway. Applicant: Ranchos Real IV, LTD, PZRZ24-00014		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019698	12-17-2024	An Ordinance releasing a condition placed on property by Ordinance No. 016754 which changed the zoning of a portion of Tract 3, Section 10, Block 80, Township 1, Texas and Pacific Railroad Company Surveys, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed condition release meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: Stan Roberts Sr. and US-54 Patriot Freeway. Applicant: Ranchos Real IV, LTD, PZCR24-00004		Omitted
019699	12-17-2024	An Ordinance changing the zoning of a portion of Lot 11, Block 5, North Loop Gardens No. 1, 7705 North Loop Drive, City of El Paso, El Paso County, Texas from A-2 (Apartment) to C-4 (Commercial), and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 7705 North Loop Drive. Applicant: Ruben and Martha Perez, PZRZ23-00042		Omitted
019700	12-17-2024	An Ordinance changing the zoning of all of Lots 17C169, 17C170, 17C171, 17C172, 17C173 and remainder of Lot 17-C-174, out of Section 8, Block 79, T-3, Texas and Pacific Railway Company Survey (T. & P. RR. CO.), City of El Paso, El Paso County, Texas from R-3 (Residential) to C-4 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: Vista del Sol Dr. and Joe Battle Blvd. Applicant: Lubbock Christian University, PZRZ24-00022		Omitted
019701	12-17-2024	An Ordinance changing the zoning of a portion of Tract 1, Picnic Grove Subdivision, City of El Paso, El Paso County, Texas from M-2/sc (Heavy Manufacturing/special contract) to C-4/sc (Commercial/special contract) and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: Inglewood Dr. and Alameda Ave. Applicant: Viva Property Land LLC, PZRZ24-00027		Omitted
019702	12-17-2024	An Ordinance vacating a ten-foot Public Utility Easement (0.014 Acres of Land) located within Lot 20, Block 15, Park Hills #6 Amending, City of El Paso, El Paso County, Texas. Subject Property: 6300 Via Serena Dr. Applicant: Amy A. Nichols, SUET24-00002		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019704	1- 7-2025	An Ordinance amending Title 9 (Health and Safety), Chapter 9.52 (Fire Prevention Code), Section 9.52.030.5 (Section 105.5 Required Operational Permits), Subsection 105.5.56.1 (Definitions) to add definition of "Fire Response Expense"; Section 9.52.030.5 (Section 105.5 Required Operational Permits), Subsection 105.5.56.6 (Permit Requirements) to add Biannual Inspections; Section 9.52.030.5 (Section 105.5 Required Operational Permits), Subsection 105.5.56.7 (Storage) to amend the height limit of combustible materials per unit; Section 9.52.030.5 (Section 105.5 Required Operational Permits) to add Subsection 105.5.56.10 (Response Expenses) to add Response Expenses for Permit Holders Stemming from Fire Events. The penalty as provided in Section 9.52.030.17 of the El Paso City Code.	1—4	9.52.030.5
019705	1- 7-2025	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.44 (Stopping, Standing and Parking Generally), Section 12.44.280 (Restrictions on Parking in Residential Parking Districts) of the El Paso City Code to perform the following: Amend Paragraph A (Policy) to add "Recreational and Entertainment" for residential uses; to delete "to preserve the value of the property in those districts"; amend Paragraph B (Definitions) to add "Applicant"; amend "Light Density Residential District"; amend "Resident"; amend "Residential Property"; add to Paragraph C (Creation of Residential Parking Districts) Subparagraph 2 (Criteria) Item H "or medium" after Light; to delete Paragraph G (Parking Permits) Subparagraph 4 (Limitations on the issuance of parking permits) Item D; and to add Paragraph G (Parking Permits) Subparagraph 4 (Limitations on the issuance of parking permits) Item D. The penalty as provided in 12.84.010 of the El Paso City Code.	1	12.44.280
019706	1-22-2025	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.200 (Schedule XVII-Restrictions on Parking in Residential Districts), Subsection Zone O: No Parking Any Time, Tow Away Zone, of the El Paso City Code, to add Item 2: 3720 E. San Antonio Ave. to 3828 E. San Antonio Ave., south side only; to add Item 3: Gateway Blvd. South from E. San Antonio Ave. to Findley Ave., west side only; to add Item 4: 3700 Findley Ave. to 3821 Findley Ave., north side only; to add Item 5: 3808 Findley Ave. to 3816 Findley Ave., south side only; to add Item 6: Alley Between E. San Antonio Ave. and Findley Ave., from Stevens St. to E. San Antonio Ave., both sides; to add Item 7: S. Stevens St. from Findley Ave. to the alley of Findley Ave., east side only; to add Item 8: S. Latta St. from E. San Antonio Ave. to Findley Ave., both sides; the penalty being provided In Chapter 12.88 of the El Paso City Code.	1	12.88.200

Ordinance Number	Approval Date	Description	Section	Section this Code
019707	2- 4-2025	An Ordinance renewing and extending the Special Privilege License to Texas Tech University Health Sciences Center for the maintenance, use and repair the surface parking lot, overhead bird netting, and drainage pipes beneath the Raynolds Street overpass bridge within a portion of City right-of-way along Alberta Avenue; setting the license term for a term of ten (10) years with an option to renew for one additional ten (10) year term. Location: Along Alberta Avenue beneath the Raynolds Street overpass bridge. Applicant: Texas Tech University Health Sciences Center, PSPN23-00005		Omitted
019708	3- 4-2025	An Ordinance authorizing the City Manager to sign a Purchase and Sale Agreement, a Deed, and any other documents necessary to convey approximately 2.112 acres of land, legally described as being all of Lots 1-16 and 21-32, and the vacated alley within Block 72, Cotton Addition, City of El Paso, El Paso County, Texas. Subject Property: 210 N. Lee St.		Omitted
019709	3- 4-2025	An Ordinance authorizing the City Manager to sign a Purchase and Sale Agreement, a Deed and any other documents necessary to convey approximately 20,948 acres of land, legally described as property consisting of all or partial sections of Township 7 and 8, Block 65, and all or partial sections of PSL, Block 77, and PSL Part I and PSL Part II, Block 63, also known as The Wildhorse Ranch, Culberson County, Texas.		Omitted
019710	3- 4-2025	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), 12.88.150 (Schedules XIV - Speed Limits), Subsection F (Thirty-Five Miles per Hour), to ADD item 110: Justice Street, from Montana Avenue to North City Limits; and an Ordinance Amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), 12.88.150 (Schedules XIV - Speed Limits), Subsection G (Forty Miles per Hour), to DELETE Item 47. Justice Street, from Edgemere Boulevard to the South City Limits.	1	12.88.150 F
			2	12.88.150 G
019711	3- 4-2025	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), 12.88.180 (No Stopping or Standing - Tow-Away Zone), Subsection A, to ADD Item 120: Pollard Street, From Hayes Avenue to Truman Avenue, East Side; and to ADD Item 121: Truman Avenue, from Pollard Street to A point 420 Feet East, North Side.	1	12.88.180 A
019712	3-18-2025	An Ordinance granting Special Permit No. PZST24-00006, to allow for a clinic and side yard setback reduction on the property described as Lot 2179, Block 91, Mountain View Addition, 4893 Maxwell Avenue, City of El Paso, El Paso County, Texas pursuant to Section 20.04.260 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. The proposed special permit meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 4893 Maxwell Ave. Applicant: Project Vida, PZST24-00006		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019713	3-18-2025	An Ordinance granting Special Permit No. PZST24-00003, to allow for an orphanage shelter and side yard setback reduction on the property described as all of Lots 1-24, Block 298, a portion of Lots 1-5 and all of Lots 6-24, all of Lots 35-58, Block 300, together with the vacated portion of Cliff Street between Blocks 298 and 300 and the vacated alley in Block 300, a portion of Block 302, all in Pierce Finley addition, plus Children's Home Subdivision (formerly known as Tract 6-A FM Collins Survey #209), 1100 E. Cliff Drive, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.260 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. The proposed special permit meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 1100 E. Cliff Dr. Applicant: The Lee & Beulah Moor Children's Home, PZST24-00003		Omitted
019714	3-18-2025	An Ordinance changing the zoning of Lots 3 and 4, Block 58, East El Paso, 3505 Gateway West Boulevard, City of El Paso, El Paso County, Texas from R-5 (Residential) to C-1 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 3505 Gateway West Blvd. Applicant: Springtime Investment LLC, PZRZ24-00024		Omitted
019715	3-18-2025	An Ordinance changing the zoning of a portion of Lot 3, Block 391, Tierra Del Este Unit Sixty-Nine and a portion of Section 37 and 48, Block 79, Township 2, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas from C-2 (Commercial) to C-3 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: North of Pebble Hills Drive and East of John Hayes Street. Applicant: Camino Real Investment Properties, LLC, PZRZ24-00015		Omitted
019716	3-18-2025	An Ordinance changing the zoning of Tract 2C, Block 41, Ysleta Grant, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) to C-4 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: North of Americas Avenue and West of Southside Road. Applicant: Ajeya Bhava LLC, PZRZ24-00006		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019717	3-18-2025	An Ordinance Vacating a portion of Ninth Avenue and Alley Right-of-Way, Block 47, all within Campbell Addition, City of El Paso, El Paso County, Texas. Subject Property: East of Mesa St. and North of Cesar Chavez Memorial Highway. Applicant: United States of America (General Services Administration), El Paso Infrastructure Collaborative, LLC, Jose and Carmen Silva Family Limited Partnership, City of El Paso SURW24-00003		Omitted
019718	4-15-2025	An Ordinance approving an amendment to the Contract of Sale between the City of El Paso and VENU (dba Notes Live Inc.), a Colorado Corporation, amending the acreage of the property located at the Northeast Corner of Cohen Avenue and U.S. Highway 54, El Paso, TX 79924, legally described as a Portion of Block 7, Castner Range Subdivision No. 1, City of El Paso, El Paso County, Texas; and clarifying provisions pertaining to the parking agreement, title, and closing.		Omitted
019719	4-15-2025	An Ordinance granting Dominion Ambulance, LLC., a franchise extension and amending Ordinance 019489 to modify its franchise rate, and to operate a non-emergency ambulance transfer service.		Omitted
019720	4-15-2025	An Ordinance granting Elite Medical Air Transport, LLC D/B/A Emergent Air, a franchise extension and amending Ordinance 019518 to modify its franchise rate, and to operate a non-emergency ambulance transfer service.		Omitted
019721	4-15-2025	An Ordinance granting Elite Medical Transport of Texas, LLC., a franchise extension and amending Ordinance 019488 to modify its franchise rate, and to operate a non-emergency ambulance transfer services.		Omitted
019722	4-15-2025	An Ordinance granting Life Ambulance Service, INC., a franchise extension and amending Ordinance 019491 to modify its franchise rate, and to operate a non-emergency ambulance transfer service.		Omitted
019723	4-15-2025	An Ordinance changing the zoning of Tracts 2-B, 2-B-1, 2-B-5, Block 18, Ysleta Grant Surveys, 523 Giles, City of El Paso, El Paso County, Texas from R-3 (Residential) to C-1/c (Commercial/conditions), and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 523 Giles Road. Applicant: Daniel Resendez, PZRZ24-00011.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019724	4-15-2025	An Ordinance changing the zoning of all of Tracts 1D1 and 5A and a portion of Tracts 2A1 and 5C, Section 2, Block 80, Township 1, Texas and Pacific Railway Company Surveys, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) to R-5 (Residential), and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: North of Stan Roberts Sr. Ave. and East of US-54 Patriot Freeway. Applicant: Pay All My Friends, LLC, PZRZ24-00030.		Omitted
019725	4-29-2025	An Ordinance authorizing the issuance of City of El Paso, Texas, Water and Sewer Revenue Refunding Bonds in an aggregate amount not to exceed $339,400,000 to refund certain previously issued obligations of the City; and resolving matters which are necessary to effect such issuance, including the delegation of matters relating to the sale and issuance of the bonds to an authorized City officer or employee within certain specified parameters.		Omitted
019726	4-29-2025	An Ordinance authorizing the issuance of City of El Paso, Texas, Municipal Drainage Utility System Revenue Refunding Bonds in an aggregate amount not to exceed $73,600,000 to refund certain previously issued obligations of the City; and resolving matters which are necessary to effect such issuance, including the delegation of matters relating to the sale and issuance of the bonds to an authorized City officer or employee within certain specified parameters.		Omitted
019727	4-29-2025	An Ordinance amending Ordinance No. 10739 as amended by Ordinance Nos. 15658, 15167, 15006, 12909, and 12141, and amending the Budget Resolution Fee Schedule to revise the Overdue Fines for Materials charged by the El Paso Public Library to $0.00 and forgive any outstanding fine balance for overdue materials.		Omitted
019728	5-13-2025	An Ordinance changing the zoning of Lots 6-9, Block 1, Golden Hill Addition, 1814 & 1818 Arizona Avenue, City of El Paso, El Paso County, Texas from R-5 (Residential) to A-O (Apartment/Office). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 1814 and 1818 Arizona Avenue. Applicant: Fernando and Frances S. Guijarro, PZRZ24-00001.		Omitted
019729	5-13-2025	An Ordinance granting Special Permit No. PZST24-00010, to allow for infill development with 50% parking reduction on the property described as Lots 6-9, Block 1, Golden Hill Addition, 1814 & 1818 Arizona Avenue, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed special permit meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 1814 and 1818 Arizona Avenue. Applicant: Fernando and Frances S. Guijarro, PZST24-00010.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019730	5-13-2025	An Ordinance granting Special Permit No. PZST24-00016, to allow for infill development with reductions to average lot width, front, rear, and side yard setbacks and 100% parking reduction on the property described as Lot 9, Block 38, Magoffin Subdivision, 903 Park Street, City of El Paso, El Paso County, Texas, pursuant to Section 20.10.280 Infill Development of the El Paso City Code. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed special permit meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 903 Park Street. Applicant: Eleuteria Sandra Hering, PZST24-00016.		Omitted
019731	5-13-2025	An Ordinance changing the zoning of Tract 11B and Tract 12E, Block 7, Ysleta Grant, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) to R-4 (Residential) and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 8700 Pell Way. Applicant: Hector Saucedo and Rene Saucedo, PZRZ24-00013.		Omitted
019732	5-13-2025	An Ordinance changing the zoning of Tract 3-A-3 and Tract 5-A-1, Block 7, Ysleta Grant, City of El Paso, El Paso County, Texas: Parcel 1 from R-F (Ranch and Farm) to C-1 (Commercial) and Parcel 2 from R-F (Ranch and Farm) to C-2 (Commercial), and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: Northwest of Zaragoza Rd. and West of North Loop Dr. Applicant: North Goza LLC, PZRZ24-00009.		Omitted
019733	5-13-2025	An Ordinance granting a non-exclusive franchise to Rio Grande Waste Services, Inc. to operate and maintain a solid waste collection and hauler service within the City of El Paso subject to the franchise terms and conditions; the penalty as provided in section 9.04.630 of the El Paso City Code.		Omitted
019734	5-28-2025	An Ordinance amending Title 20 (Zoning), Chapter 20.02 (General Provisions and Definitions), Chapter 20.08 (Appendix A), Table of Permissible Uses, Chapter 20.10 (Supplemental Use Regulations), and (Appendix C) Table of Parking Requirements and Standards of the El Paso City Code to support the goals and priorities of downtown redevelopment, add definitions, disallow incompatible uses within the C-5 (Commercial) Zoning District, and allow uses supportive of high-density development. The penalty is as provided for in Chapter 20.24 of the El Paso City Code.	1 Added	20.02.273,
				20.02.1091
			2	Tit. 20, App. A
			3	20.10.190
				20.10.610
			Rpld	20.10.100,

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				20.10.170,
				20.10.300,
				20.10.380,
				20.10.390
			Added	20.10.185
			4	Tit. 20, App. C
019735	5-28-2025	An Ordinance changing the zoning of a portion of Tract 8, Milagro Acres, City of El Paso, El Paso County, Texas from R-4 (Residential) to C-1 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 9649 Dyer St. Applicant: Erica Becerra and Jesus Becerra, PZRZ24-00036.		Omitted
019736	5-28-2025	An Ordinance changing the zoning of a portion of Tract 1-B-1 and 1-B-2, O.A. Danielson Survey 314 and a portion of Tract 3-B, Block 56, Ysleta Grant Survey, City of El Paso, El Paso County, Texas from C-3/sc (Commercial/special contract) to C-4/sc (Commercial/special contract). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: Gateway Blvd. East and Americas. Applicant: Ivey Partners LTD, PZRZ24-00037		Omitted
019737	5-28-2025	An Ordinance changing the zoning of a portion of Tract 70 and 71, Cinecue Park Subdivision, 422 S. Yarbrough Drive, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) to C-1 (Commercial), and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 422 S. Yarbrough Drive. Applicant: Enrique Padilla and Erika Zuniga, PZRZ24-00032.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019738	5-28-2025	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.48 (Loading Zones, Bus and Taxi Stands), of the El Paso City Code to perform the following: Amend Chapter 12.48 (Loading Zones, Bus and Taxi Stands) heading to ADD "Rideshare Zones"; Amend section 12.48.010 (Loading Zone - Authority to Designate) to ADD Paragraph C; Amend Section 12.48.030 (Loading Zone - Pick-Up and Discharge of Passengers) to replace "Passenger" with "Rideshare or Taxi", and to ADD "For a Maximum of Five Minutes"; Amend Section 12.48.040 (Public Carrier Stops, Stands and Route - Authority to Designate) Paragraph A to ADD "Rideshare Zones" and "Rideshare Zone"; Amend Section 12.48.050 (Use of Stands by Buses and Taxicabs) heading to ADD "Rideshare Vehicles", and to ADD Paragraph E; Amend Section 12.48.060 (Use of Stands by Other than Those Designated for) to DELETE "Or Other Than", and to ADD "Or other than a Rideshare Vehicle in a Rideshare Zone". The penalty as provided in Chapter 12.84 of the El Paso City Code.	1	Ch. 12.48(title)
			2	12.48.010
			3	12.48.030
			4	12.48.040
			5	12.48.050
			6	12.48.060
019739	6-10-2025	An Ordinance granting a Special Privilege License to Rio Valley LLC to allow for the construction, installation, maintenance, use and repair of a surface encroachment consisting of four (4) covered balconies and support columns over the city right-of-way for the planned development located along La Vona Dr.; setting the license term for a term of fifteen (15) years with an option for one (1) renewable fifteen (15) year term. Subject Property: 6441 Westside Dr. Applicant: Rio Valley LLC, PSPN24-00007.		Omitted
019740	6-24-2025	An Ordinance authorizing the issuance of City of El Paso, Texas, General Obligation Refunding Bonds, Series 2025 for debt service savings in an amount not to exceed $285,640,000; levying a continuing direct annual ad valorem tax for the payment of such Bonds; and resolving other matters which are necessary to effectuate such issuance; including the delegation of matters relating to the sale and issuance of such Bonds to an authorized City official within certain specified parameters.		Omitted
019741	6-24-2025	An Ordinance changing the zoning of a part of Tract 5D, Tract 5E1A, and Tract 5E1B, Block 41, Ysleta Grant, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) to C-4 (Commercial) and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: North of Americas Ave. and West of Southside Dr. Applicant: Mount Carmel Cemetery, PZRZ24-00042.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019742	6-24-2025	An Ordinance amending the Future Land Use Map (FLUM) contained in "Plan El Paso" for the properties legally described as part of Tract 1B, part of Tract 3, Tract 5D, part of Tract 5E1A, and part of Tract 5E1B, part of Tract 2C, Block 41, and part of Tract 5C-1, Block 50, Ysleta Grant, City of El Paso, El Paso County, Texas, from O-1, Preserve and O-3, Agriculture to G-7, Industrial and/or Railyards. Subject Property: North of Americas Ave. and West of Southside Rd. Applicant: Mount Carmel Cemetery, Ajeya Bhava, LLC, and FIELP #1 LLC PLCP25-00001.		Omitted
019743	6-24-2025	An Ordinance changing the zoning of Lot 4, Block 1, Falcon Hills #2, 7213 Royal Arms Drive, City of El Paso, El Paso County, Texas from R-3/sp Residential/special permit) to R-4/sp (Residential/special permit), and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 7213 Royal Arms Drive. Applicant: Lucia Garcia, PZRZ24-00029.		Omitted
019744	6-24-2025	An Ordinance changing the zoning of Lots 5 to 10, Block 226, Alexander, 2821 N. Kansas Street, City of El Paso, El Paso County, Texas from A-2 (Apartment) to A-3 (Apartment). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 2821 N. Kansas St. Applicant: Reyesbilt Group, LLC, PZRZ24-00034.		Omitted
019745	6-24-2025	An Ordinance granting Special Permit No. PZST24-00017, to allow for a 70% parking reduction on the property described as Lots 5 to 10, Block 226, Alexander, 2821 N. Kansas Street, City of El Paso, El Paso County, Texas, pursuant to Section 20.14.070 of the El Paso City Code. The penalty being as provided in Chapter 20.24 of the El Paso City Code. The proposed special permit meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 2821 N. Kansas St. Applicant: Reyesbilt Group, LLC, PZST24-00017.		Omitted
019746	6-24-2025	An Ordinance changing the zoning of Lot 29, Block 24, Enchanted Hills Unit Five, 7600 Hunter Foster Drive, City of El Paso, El Paso County, Texas from R-5/c (Residential/conditions) to C-1/c (Commercial/conditions) and R-5 (Residential) to C-1 (Commercial), and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 7600 Hunter Foster Dr. Applicant: EP Transmountain Residential LLC, PZRZ24-00018.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019747	7- 8-2025	An Ordinance of the City Council of the City of El Paso, Texas, dissolving Tax Increment Reinvestment Zone Number Nine City of El Paso, Texas, and terminating the Board of Directors of the zone; providing a severability clause; and providing an effective date.		Omitted
019748	7- 8-2025	An Ordinance of the City Council of the City of El Paso, Texas, dissolving Tax Increment Reinvestment Zone Number Ten, City of El Paso, Texas, and terminating the Board of Directors of the zone; providing a severability clause; and providing an effective date.		Omitted
019749	7- 8-2025	An Ordinance amending the 2025 Proposed Thoroughfare System, as incorporated into Plan El Paso, to delete the extension of Ninth Street from Frank Avenue to La Mesa, delete the proposed collector connection from Horizon Boulevard to I-10, and downgrade Gomez Road from West Terminus to Upper Valley Road to collector.		Omitted
019750	7-22-2025	An Ordinance changing the zoning of Lot 1, Block 1, River Run Subdivision Unit One, 1071 Country Club Road, City of El Paso, El Paso County, Texas from R-2/spc (Residential/special protective condition) to C-1 (Commercial) and imposing a condition. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 1071 Country Club Rd. Applicant: Upper Valley Investment Corporation, PZRZ25-00007.		Omitted
019751	7-22-2025	An Ordinance releasing all conditions placed on property by Ordinance No. 9332 which changed the zoning of Lot 1, Block 1, River Run Subdivision Unit One, 1071 Country Club Road, City of El Paso, El Paso County, Texas. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed condition release meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 1071 Country Club Rd. Applicant: Upper Valley Investment Corporation, PZCR25-00001.		Omitted
019752	7-22-2025	An Ordinance changing the zoning of all of Lots 58 and 59, save and except a portion thereof, Block 3, Lafayette Place, 525 Lafayette Drive, City of El Paso, El Paso County, Texas from R-3 (Residential) to A-2 (Apartment), and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 525 Lafayette Drive. Applicant: MVG Limitless Group, LLC. PZRZ25-00006.		Omitted

Ordinance Number	Approval Date	Description	Section	Section this Code
019753	7-22-2025	An Ordinance changing the zoning of Tracts 1 and 2, SA & MGRR Surveys No. 268, 341 Thorn Avenue, City of El Paso, El Paso County, Texas Parcel 1 from R-3 (Residential) to C-1 (Commercial) and Parcel 2 from R-3 (Residential) to C-3 (Commercial), and imposing conditions. The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 341 Thorn Avenue. Applicant: Abdolkarim Saadatkhah, Conde, Inc. PZRZ25-00001.		Omitted
019754	7-22-2025	An Ordinance changing the zoning of Tract 1F2, Block 10, Upper Valley Surveys, City of El Paso, El Paso County, Texas from R-F (Ranch and Farm) to R-2A (Residential). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: South of Abe Goldberg Dr. and East of Kings River Pl. Applicant: Alejandro, Erika, David, and Margarita Pinedo, PZRZ24-00031.		Omitted
019755	7-22-2025	An Ordinance changing the zoning of a portion of Block 8, Castner Range Subdivision No. 1, City of El Paso, El Paso County, Texas from C-1 (Commercial) to C-3 (Commercial). The penalty is as provided for in Chapter 20.24 of the El Paso City Code. The proposed rezoning meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 9909 Kenworthy St. Applicant: FirstLight Federal Credit Union, PZRZ25-00004.		Omitted
019756	7-22-2025	An Ordinance amending Title 2 (Administration and Personnel), Chapter 2.30 (Construction Board of Appeals); Section 2.30.020 (Appointment); Section 2.30.030 (Membership and Terms); Section 2.30.040 (Quorum and Voting); Section 2.30.050 (Secretary of the board); Section 2.30.060 (Powers); Section 2.30.070 (Appeals); and Section 2.30.080 (Procedures of the board) to dissolve the Construction Board of Appeals and reorganize into a new chapter 2.30 Titled Construction Appeals.	1	Ch. 2.30(title)
			2	2.30.020
			3—5	2.30.030—2.30.050
			6	2.30.060
			7	2.30.070
			8	2.30.080
019757	7-22-2025	An Ordinance amending Title 2 (Administration and Personnel), Chapter 2.92 (Ethics), Section 2.92.060 (Restriction for Former City Officers and Employees) of the El Paso City Code to remove reference to the Construction Board of Appeals.	1	2.92.060 C

Ordinance Number	Approval Date	Description	Section	Section this Code
019758	7-22-2025	An Ordinance amending Title 9 (Health and Safety), Chapter 9.52 (Fire Prevention Code), Section 9.52.030.16 (Section 111.1 Board of Appeals established, amended) of the El Paso City Code, to perform the following: amend Section 111.1 (Board of Appeals) to replace Construction Board of Appeals with appeals officer; and Section 9.52.110.4 (section 3201.1.4, appeals, added), of the El Paso City Code to perform the following: amend section 3201.1.4 (Appeals) to replace Construction Board of Appeals with appeals officer.	1	9.52.030.16
			2	9.52.110.4
019759	7-22-2025	An Ordinance amending Title 13 (Streets, Sidewalks and Public Places), Chapter 13.04 (Street and Sidewalk Construction and Maintenance), Section 13.04.010 (Sidewalk and Curb Permit Required), Paragraph A of the El Paso City Code to perform the following: amend Section 13.04.010 to replace Construction Board of Appeals with appeals officer; and Chapter 13.08 (Excavations), Section 13.08.120 (Appeal) of the El Paso City Code to perform the following: amend Section 13.08.120 to replace Construction Board of Appeals with appeals officer.	1	13.04.010
			2	13.08.120
019760	7-22-2025	An Ordinance amending Title 15 (Public Services), Chapter 15.20 (Stormwater Management), Section 15.20.110 (Stormwater Discharge from Construction Activities), Paragraph A to replace Construction Board of Appeals with appeals officer.	1	15.20.110 A.3
019761	7-22-2025	An Ordinance amending Title 17 (Housing), Chapter 17.04 (Housing Code Adopted), Section 17.04.070 (Section 107 Amended-Appeals) of the El Paso City Code to perform the following: amend section 170.04.070 (Section 107 Amended-Appeals) to replace Construction Board of Appeals with appeals officer.	1	17.04.070

Ordinance Number	Approval Date	Description	Section	Section this Code
019762	7-22-2025	An Ordinance amending Title 18 (Building and Construction), Chapter 18.02 (Building and Construction Administrative Code); Chapter 18.08 (Building Code); Chapter 18.18 (Outdoor Lighting Code); Chapter 18.44 (Grading); Chapter 18.46 (Landscape); and Chapter 18.60 (Flood Damage Prevention) of the El Paso City Code to perform the following: amend Section 18.02.105.27 (Appeals to the Construction Board of Appeals) to replace Construction Board of Appeals with appeals officer; amend Section 18.02.107.15.5 (Third Party Service Provider Audit Process) to replace Construction Board of Appeals with appeals officer; amend Section 18.02.111.13 (Appeals to the Construction Board of Appeals) to replace Construction Board of Appeals with appeals officer; amend Section 18.08.080 Section 501.2.4 (Appeals) to replace Construction Board of Appeals with appeals officer; amend Section 18.08.140 Section 1101.4 (Variances) to replace Construction Board of Appeals with appeals officer; amend Section 18.18.380 (Appeals) to replace Construction Board of Appeals with appeals officer; amend Section 18.44.120 (Appeals) to replace Construction Board of Appeals with appeals officer amend Section 18.46.310 (Appeals), Paragraph A to replace Construction Board of Appeals with appeals officer; and amend Section 18.60.180 (Development Permit Procedures) Section C Paragraphs 1, 2, 3 and 7 to replace Construction Board of Appeals with appeals officer.	1	18.02.105.27
			2	18.02.111.13
			3	18.08.080
			4	18.08.140
			5	18.18.380
			6	18.44.120
			7	18.46.310 A
			8	18.60.180 C

Ordinance Number	Approval Date	Description	Section	Section this Code
019763	7-22-2025	An Ordinance Amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.200 (Schedule XVII-Restrictions on Parking in Residential Districts), of the El Paso City Code; to add Item: Subsection Zone X: No Parking, 8:00 am to 5:00 pm, Monday through Friday; and an Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.200 (Schedule XVII Restrictions on Parking in Residential Districts), Subsection Zone X (No Parking, 8:00 am To 5:00 pm, Monday through Friday), of the El Paso City Code; to add Items: 1.1600 Block of N. Kansas Street, between E. Schuster Avenue and E Crosby Avenue, West Side only, 2. 1600 Block of N Kansas Street, from E. Schuster Avenue to a Point 180 feet South of E. Schuster Avenue, East Side only., 3. 400 Block of E. Crosby Avenue, Between the alley East of N. Kansas Street and N. Campbell Street, North Side only., 4. 400 Block of E. Crosby Avenue, between N. Kansas Street and N. Campbell Street, South Side only, 5. 500 Block of East Crosby Avenue, between N. Campbell Street and N. Florence Street, North Side only, 6. 500 Block of E. Crosby Avenue, between the alley east of N. Campbell Street and N. Florence Street, South Side only, 7. 1600 Block of N. Florence Street, From 115 feet South of E. Schuster Avenue to E. Crosby Avenue, West Side only, 8. 1600 Block of N. Florence Street, between E. Schuster Avenue and E. Crosby Avenue, East Side only, 9.1600 Block of N. Campbell Street, between E. Schuster Avenue and E. Crosby Avenue, West Side only, and 10. 1600 Block of N. Campbell Street, from a point 170 feet South of E. Schuster Avenue to E. Crosby Avenue, East Side only. The penalty being provided in Chapter 12.88 of the El Paso City Code.	1, 2	12.88.200
019764	7-22-2025	An Ordinance amending Title 12 (Vehicles and Traffic),Chapter 12.88 (Schedules), Section 12.88.200 (Schedule XVII-Restrictions on Parking in Residential Districts), to add Subsection Zone Y: No Parking Any Time, Decal Required, of the El Paso City Code, to add Item 1: 6629 McFarland Avenue to 6765 McFarland Avenue, both sides; to add Item 2: 300 Del Palmar Court to 309 Del Palmar Court, both sides; to add Item 3: 200 Playa Tronones Avenue to 309 Playa Tronones Avenue, both sides; to add Item 4. 6601 La Puesta Drive to 6765 La Puesta Drive, both sides; to add Item 5: 6700 Ixtapa Place to 6765 Ixtapa Place, both sides; to add Item 6: 300 McFarland Circle to 312 McFarland Circle, both sides; the penalty being provided in Chapter 12.88 of the El Paso City Code.	1	12.88.200

Ordinance Number	Approval Date	Description	Section	Section this Code
019765	7-22-2025	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.150 (Schedules XIV -Speed Limits), of the El Paso city Cod; to ADD ITEM: Subsection T. Speed limits on Martin Luther King Jr. Boulevard (FM3255); and an Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.150 (Schedules XIV -Speed Limits), Subsection T (Speed limits on Martin Luther King Jr. Boulevard (FM3255)), of the El Paso City Code; to ADD ITEMS: 1. 45 M.P.H. on Martin Luther King Jr. Boulevard (FM 3255), from Loma Real Avenue to Gateway South Boulevard, 2. 55 M.P.H. on Martin Luther King Jr. Boulevard (FM 3255), from a Point 3.05 Miles South of State Line to Loma Real Avenue, 3. 65 M.P.H. on Martin Luther King Jr. Boulevard (FM 3255), from State Line to a Point 3.05 Miles South.	1, 2	12.88.150 T
019766	8- 5-2025	An Ordinance amending Title 2 (Administration and Personnel), Chapter 2.04 (Boards, and Commissions and Committees Generally) to rename and amend Section 2.04.010 (Meetings-Excessive Absences) to remove references of excessive absences, Section be renamed "Uniform Bylaws," and require Boards and Commissions to adopt the City's Uniform Bylaws; to amend Section 2.04.020 (Meetings-Minutes-Recordkeeping Requirements) to update the requirements of recordkeeping meeting minutes.	1	2.04.010
			2	2.04.020
019767	8- 5-2025	An Ordinance repealing Ordinance 008961 which enacted the City Accessibility Advisory Committee, and repealing Ordinance 017082 and Ordinance 011469 which amended the City Accessibility Advisory Committee.		Omitted
019768	8- 5-2025	An Ordinance amending Title 3 (Revenue and Finance) of the El Paso Municipal Code, Chapter 3.04 (Property Taxes) by amending Section 3.04.040 (Exemption - Residence Homestead) to Increase the Ad Valorem Property Tax Exemption for individuals who qualify under the current Code.	1	3.04.040 A
019769	8-19-2025	An Ordinance levying FY2026 Taxes.		Omitted
019770	8-19-2025	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.58 (Schedules), Section 12.58.010 (Definitions), to amend references and language regarding the Uptown Parking Benefit District Advisory Committee in its entirety; amending Title 12 (Vehicles and Traffic), Chapter 12.58 (Schedules), Section 12.58.030 (Parking Benefit District Requirements), to amend references and language regarding the Uptown Parking Benefit District Advisory Committee in its entirety; amending Title 12 (Vehicles and Traffic), Chapter 12.58 (Schedules), Section 12.58.060 (Application Requirements), to amend references and language regarding the Uptown Parking Benefit District Advisory Committee in its entirety; and amending Title 12 (Vehicles and Traffic), Chapter 12.58 (Schedules), Section 12.58.080 (Parking Benefit District Advisory Committee), to amend references and language regarding the Uptown Parking Benefit District Advisory Committee in its entirety.	1	12.58.010
			2	12.58.030 C

Ordinance Number	Approval Date	Description	Section	Section this Code
			3	12.58.060 A.5
			4	12.58.080
019771	8-19-2025	An Ordinance amending Title 12 (Vehicles and Traffic), Chapter 12.88 (Schedules), Section 12.88.230 (Schedule XX-Parking Benefit Districts), to amend references and language regarding the Uptown Parking Benefit District Advisory Committee in its entirety.	1	12.88.230
019772	8-19-2025	An Ordinance granting Special Permit No. PZST24-00012, to allow for a professional office use and 100% parking reduction on the property described as being the East 30 feet of the West 60 feet of Lots 1, 2, and 3, Block 273, Campbell Addition, 509 Rio Grande Avenue, City of El Paso, El Paso County, Texas, pursuant to Section 20.04.260 of the El Paso City Code. The penalty being as provided for in Chapter 20.24 of the El Paso City Code. The proposed special permit meets the intent of the Future Land Use designation for the property and is in accordance with Plan El Paso, the City's Comprehensive Plan. Subject Property: 509 Rio Grande Avenue. Applicant: Anthony and Jessica Mendez, PZST24-00012		Omitted
019773	8-19-2025	An Ordinance amending Ordinance No. 019580 vacating a 1.061 acre portion of Randolph Street and Blacker Avenue Rights-Of-Way, to include the entirety of the intersection of Randolph Street and Blanchard Avenue, located within Alexander Addition, City of El Paso, El Paso County, Texas. Subject Property: Randolph Street and Blacker Avenue. Applicant: Board of Regents of the University of Texas System SURW23-00013		Omitted
019774	8-19-2025	An Ordinance amending Title 2 (Administration and Personnel), Chapter 2.40 (Department of Museums and Cultural Affairs), to remove references and language regarding the Museums and Cultural Affairs Board in Sections 2.40.030, 2.40.040, 2.40.050, 2.40.060, 2.40.070, and 2.40.080.	1	2.40.030—2.40.060
				2.40.080
			2	2.40.070 B.5
019775	8-19-2025	An Ordinance amending Title 2 (Administration and Personnel), Chapter 2.08 (City Plan Commission) to add Section 2.08.160 (Climate and Sustainability) in order to modify the purview of City Plan Commission to include Climate and Sustainable Development.	1	2.08.160
019776	8-19-2025	An Ordinance amending Title 2 (Administration and Personnel), to amend Chapter 2.22 (Open Space Advisory Board) and replace with Chapter 2.22 Reserved). To remove references and language regarding the Open Space Advisory Board in its entirety.	2	2.22.010—2.22.060
019777	8-19-2025	An Ordinance amending Title 2 (Administration And Personnel), to remove Chapter 2.72 (Committee on Border Relations) to remove references and language regarding the Committee on Border Relations in its entirety.	2	2.72.010—2.72.040
019778	8-19-2025	An Ordinance amending Title 2 (Administration and Personnel), Chapter 2.20 (Boards of Parks and Recreation), to remove reference and language regarding the Parks and Recreation Advisory Board in Chapter 2.20.	1	2.20.010—2.20.110

Ordinance Number	Approval Date	Description	Section	Section this Code
019779	8-19-2025	An Ordinance amending Title 7 (Animals), Chapter 7.28 (Animal Shelter Advisory Committee), to remove references and language regarding the Animal Shelter Advisory Committee in its entirety.	2	7.28.010—7.28.060
019780	8-19-2025	An Ordinance amending Ordinance No. 018746, Title 2 (Administration and Personnel), Chapter 2.06 (Procedures for Placing Matters on the Agenda of the City Council). Section 2.06.020 (Timely Submission), to amend the deadlines to timely submit agenda items and give the City Clerk authority to establish revised deadlines as necessary to conform with State law; Section 2.06.040 (Summary Explanation and Back-Up Materials) to amend the deadlines for the submission of the summary explanation and back up materials; Section 2.06.070 (Timely Submission of Proposed Legal Documents) to amend the deadline to timely submit a copy of proposed legal documents to City Council; Section 2.06.110 (Placement of Items on the Agenda by City Council Members) to amend the deadlines by which City Council Representatives may place matters relating to reporting, appointments, presentations, or request action and change the term "Legislative Review Committees" to "Informal Work Sessions."	1	2.06.020
			2	2.06.040
			3	2.06.070
			4	2.06.110
019781	8-19-2025	An Ordinance amending Title 5 (Business License and Permit Regulations), Chapter 5.03 (Amplified Sound Permit), Article I (General Provisions), Section 5.03.010 (Compliance Required) to add exception for food service establishments and restaurants; Section 5.03.020 (Definitions) to add definition of food service establishment and restaurant; the penalty as provided in 5.03.130 of the City Code.	1	5.03.010
			2	5.03.020
019782	8-19-2025	An Ordinance amending Title 9 (Health and Safety), Chapter 9.40 (Noise), Section 9.40.010 (Definitions) to add definitions for decibel readings using the C-weighted system (DB(C)), food service establishment and restaurant; Section 9.40.020 (Applicability) to clarify an exception for delivery of supplies to establishments; Section 9.40.030 (Sound Level Violations) to clarify the maximum sound level for "A" and "C" readings and the timeframe for enforcement for restaurants; the penalty as provided in Section 9.40.070 of the City Code.	1	9.40.010
			2	9.40.020
			3	9.40.030
019783	8-19-2025	An Ordinance amending Title 9 (Health and Safety), Chapter 9.12 (Food and Food Handling Establishments), Section 9.12.007 (Applicability) of the El Paso City Code to perform the following in accordance with House Bill 2844 of the Texas 89th Legislative Session: amend Section 9.12.007 (Applicability), to add a separate provision. The penalty as provided in 9.12.890 of the El Paso City Code.	1	9.12.007

— A —

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